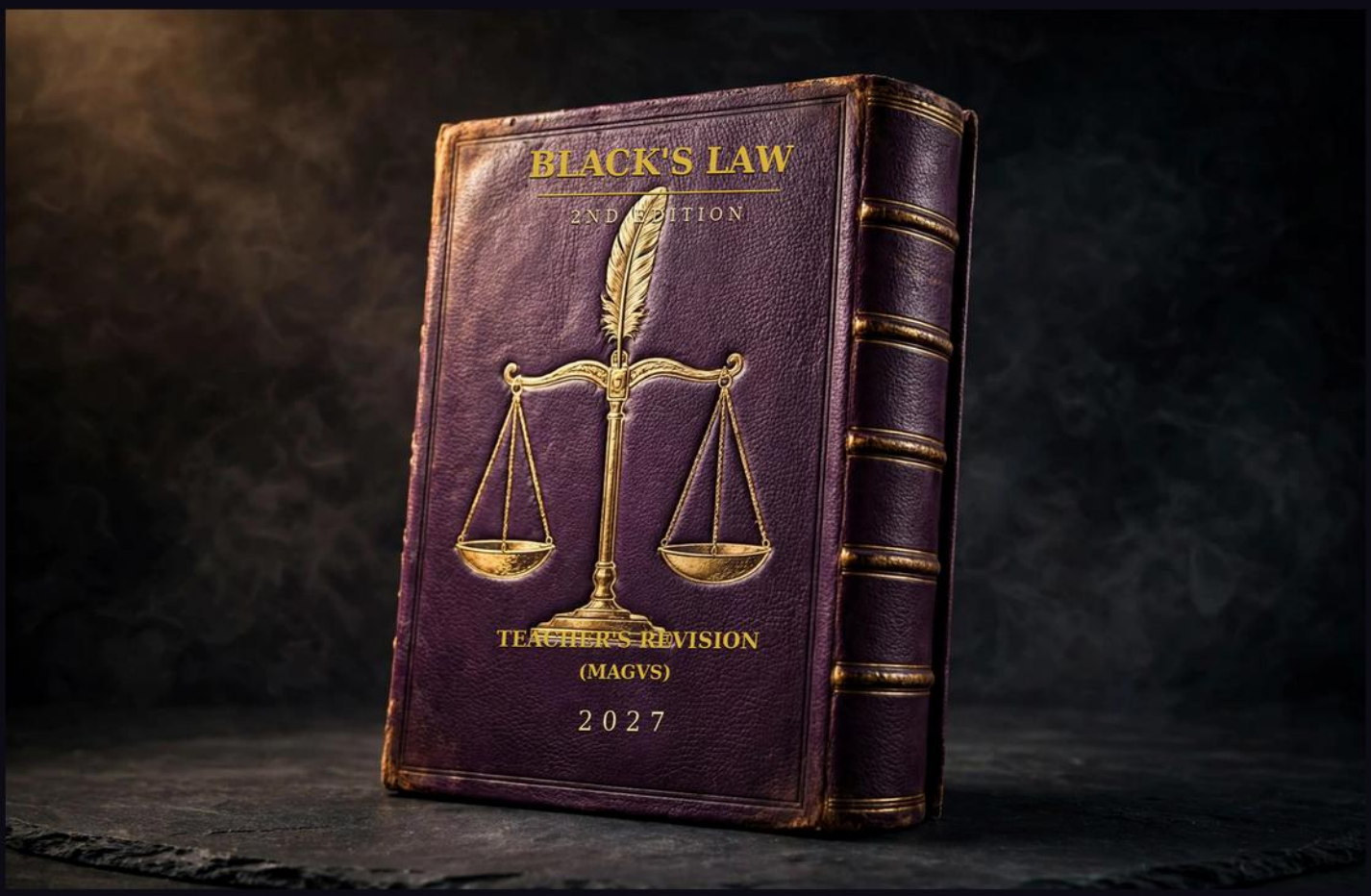
# BLACK'S LAW

## 2ND EDITION

## TEACHER'S REVISION (MAGVS)




2027 · VIA 1910

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**DOCTRINE — BLACK'S LAW DICTIONARY, SECOND EDITION**

# BLACK'S LAW DICTIONARY

## Second Edition — West Publishing Co., 1910

### THE FINAL TEACHER'S EDITION — One Volume Complete

**The Complete Text with the Four Wells, the Fifth-Edition Apparatus, the Errata, and the Register of New Headwords**

**Under the Scales of Ma'at — Law, Scripture, Hip-hop, Humanity**

Authorship attributed exclusively to Johnathan 'Qasparr' Monroe (Greek, -ARR, All Rights Reserved, Without Prejudice)

this XXV day of October, Dies Solis, Sol in Scorpio, Anno V:xii e.n. (2026 e.v.)

Classification: Enterprise • Educational • Research & Development

Method of Science, Aim of Religion

**PARSED AND CLEANED — SCAN-VERIFICATION PENDING. NOT AUDITED.**

This volume carries the complete parsed text of the 1910 second edition, layered with the four well-phase annotation sets, the fifth-edition apparatus mapped entry by entry, the KJV text-diff errata, and open markers wherever the scan of the original failed. It has not yet passed the TRVVTH scan-verification audit; that audit is the 2027 work. Nothing in these pages claims 'audited' or 'restored.' Every annotation is a finding, never doctrine, until his red pen rules.

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# I. STATEMENT OF THE WORK

This is the final Teacher's Edition of Black's Law Dictionary, Second Edition (1910), complete in one volume: the full dictionary text with the Four Wells layered entry by entry — Law, Scripture, Hip-hop, and Humanity with Fiction & film — together with the Teacher's apparatus that the two-volume plan reserved for the second volume: the fifth-edition mapping, the KJV errata, the scan-limitation markers, and the register of headwords new in the fifth edition. The two-volume set (the dictionary under the Scales of Ma'at; the Teacher's Edition under the Open Word) is here married into a single book, at his order.

The honest label on the title page is the load-bearing beam of this volume. A text that claimed audit it had not done would be false in one thing, and therefore suspect in all. Where the scan of the original failed, this book says so, in the open, at the very place of the failure (§VI). Where a ruling has marked a footnote, the footnote stands marked, not vanished (§VII). The gaps in these pages are limitations of the scan-to-text process, openly shown — nothing is being hidden, and nothing has been editorially omitted.

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1. The Gospel According to Matthew 5:37 (KJV): 'let your communication be, Yea, yea; Nay, nay.'

2. Legal maxim: falsus in uno, falsus in omnibus — false in one thing, false in all.

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# II. SOURCE, METHOD, AND MERGE

Source: the Internet Archive OCR text of the 1910 second edition, title page verified as Second Edition, West Publishing Co., 1910. The parser recovered 13,145 entries.

Base method: four deterministic cleanup rules — tabs to spaces, multiple spaces collapsed (paragraph breaks preserved), OCR line-break hyphenation rejoined, trailing whitespace stripped. Glyph misreads are deliberately NOT corrected in the base text; they wait for scan evidence in the 2027 audit. Two classes of change ARE made in this final build, each logged and each printed in the open: the eight KJV transcription corrections in the Scripture annotations (§VII, old reading beside new), and nothing else. No other word of the base text or the annotations is altered.

Merge method: annotation keys are the workers' chunk-exact OCR headwords, joined to entries on exact match. Where a key did not match — OCR-normalized spellings, or definitions fused by the parser into neighboring entries' bodies — the coordinators' placement notes were applied, each verified against the actual entry bodies (83 re-homes), and every move logged in the build log. Three Phase 4 annotations — for SELF-DEFENSE, SERVITUDE, and SILENCE — found no parsed entry to attach to (the parse left those headwords' text unsegmented inside preceding entries) and were struck at phase merge in 2026, preserved in the worker's struck file; the annotations were never part of this book. One Law annotation (LAST) stands excluded, as it has since the merge, because the text it claimed to illuminate exists nowhere in the 13,145 entries; the exclusion and its reason are disclosed at §VII, and the annotation itself remains preserved in the phase data.

Dispositions in this book are marked, never vanished — the Architect's standing rule, so that a future researcher retracing the work can see what was marked, why, and by whom.

Footnotes are reference material, not legal advice; no legal effect is claimed by any of them.

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1. The First Epistle to the Thessalonians 5:21 (KJV): 'Prove all things; hold fast that which is good.'

2. Nullius in verba — 'take nobody's word for it.'

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# III. THE FOUR WELLS AND THE KJV TEXT-DIFF

Four phases, each a full pass of all 13,145 entries through one well, each with its own audit, each worked by a fresh team of 24 agents whose ultra-verbose thought logs are preserved for future analysis. Yield: Law — 2096 footnotes; Scripture — 1621 footnotes (538 in the deity's own voice, red-lettered); Hip-hop — 109 footnotes; Humanity with Fiction & film — 676 footnotes. 3500 entries carry at least one footnote; the rest stand bare — the emptiness is a finding, not a failure.

Discipline: genuine links only, verbatim or not at all, never force-fit, never fabricated. Where a well had nothing genuine for an entry, nothing was drawn.

The KJV text-diff — the Scripture workers' standing recommendation, executed for this build: every one of the 1,621 Scripture annotations was mechanically diffed against the King James Version (Project Gutenberg #10; the verse index validated at 31,102 verses in 66 books, and cross-checked against a second structured transcription on all 833 distinct cited verses). Result: 1,424 exact, 176 clean partial quotations, 8 genuine transcription errors (corrected in the text; printed at §VII with their old readings), 10 flagged, 1 wrong reference (flagged, not altered — reference correction is the Architect's pen alone), and 2 excluded as non-KJV (the Qur'an annotations). Measured plainly: 98.8% of the KJV annotations stood exact or clean partial as written. The two public transcriptions of the KJV themselves disagree at a handful of verses; where an annotation follows the other printing, it is flagged as an edition variant, never 'corrected' toward one printing over another.

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1. Ecclesiastes 3:1 (KJV): 'To every thing there is a season, and a time to every purpose under the heaven.'

2. Festina lente — 'make haste slowly.'

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# IV. THE RED-LETTER RULE

In this volume, the verbatim speech of a deity is set in blood red, so the reader knows a deity is speaking — the classic red-letter edition convention. This covers Jesus' verbatim words, first-person divine speech ('Thus saith the LORD'), and any deity's verbatim words in any scripture. Narrative about a deity stays in the body ink.

538 Scripture footnotes carry the red letter in this volume.

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1. The Gospel According to John 1:1 (KJV): 'In the beginning was the Word, and the Word was with God, and the Word was God.'

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# V. THE FIFTH-EDITION APPARATUS — KEY AND RECONCILIATION

Beneath every entry in this book stands one apparatus line, giving that entry's fate in the fifth edition (West, 1979) exactly as the census data supports — no more. The line reads one of two ways: 'Carried into the 5th edition (1979)' (with the fifth edition's own headword form shown when it differs from this book's headword beyond case and punctuation), or 'Not carried into the 5th edition (1979)'.

Method: the fifth-edition census was regenerated from the cleaned fifth-edition study text and the second-edition scan text, reproducing its published figures exactly — 21,979 unique fifth-edition headwords; 12,892 unique headwords in the census's own second-edition parse; 3,881 survived; 9,011 lost; 18,098 new. The join key is the normalized headword (lowercase alphanumeric). This book's apparatus is counted per ENTRY of the shipped base parse (13,145 entries over 13,028 distinct keys): 3,872 entries carried, 9,273 not carried. The two survivals — 3,881 census keys, 3,872 book entries — are both correct; they count different sets, and the difference is the parse divergence reconciled below.

The 253 reconciliation, in brief: the census's turnover was computed against its own 12,892-key parse, not against this book's 13,145 entries. The gap decomposes exactly, with zero residue: 253 = 117 duplicate-key collapses inside the base parse (91 keys carrying extra entries — genuine repeated entries that normalize identically) + 522 base-only keys − 386 census-only keys. The base-only keys are headwords the census parser's rules could not crown: 182 carry commas (inverted titles), 161 are headwords wrapped across two or three scan lines (the census crowns their tail fragments under other keys), 70 carry periods (dotted initialisms), 66 carry the curly apostrophe, and the remaining 43 fall to length minima, parentheses, a page-artifact guard, and one ornament-defeated anchor. The full decomposition, with examples and the census-side partition, is published with this build's data files (reconciliation.md).

Changed form: the apparatus prints NO changed-form state, because the data does not support one. Two stated methods for detecting same-lemma form changes (trailing-plural normalization; Levenshtein distance ≤ 1) were tested against lemma-checked samples at a pre-set 100% precision gate, and both failed it (56.7% and 63.3% — the failures are distinct entries one letter apart, of the ACT/ACTS kind). Printing near-matches as fates would assert what was not verified. The candidate pairs stand recorded as UNCHARTED in the census work files, for a future pass under a fresh, pre-registered sample.

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Copyright boundary, absolute: this apparatus carries headwords and status only. No fifth-edition definition text appears anywhere in this book — the same analytical line the married Teacher's Edition kept. The fifth edition remains in copyright; its text stays private.

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1. The Gospel According to Luke 14:28 (KJV): 'For which of you, intending to build a tower, sitteth not down first, and counteth the cost.'

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# VI. SCAN-LIMITATION MARKERS — WHAT THE MARKS MEAN

This book marks, in the open and at the very place of the failure, every locus its rules detect where the text is incomplete because of the scan of the original. The marks mean: the scan-to-text process failed here. They do not mean the editors omitted anything. Nothing behind a mark has been reconstructed, completed, or invented; repair belongs to the 2027 scan-verification audit, which will work from the scan images themselves.

Two marks are used. The strong mark — [TEXT INCOMPLETE — scan limitation] — prints where the break is definite: an entry body empty in the scan (23 loci), a body ending mid-word on a hyphen (49), a body ending on a comma (49), a passage degenerated into letter-digit garble (4, including the headword JU8TITIA), or a defect flagged by the 2026 stratified audit (8). The candidate mark — [TEXT POSSIBLY INCOMPLETE — scan candidate] — prints where the pattern is consistent with scan loss but may be authorial: a body ending without terminal punctuation (601), or an entry whose scan verification stands OPEN on the stratified audit's record (44). In all, 775 marks over 772 entries: 132 strong, 643 candidate.

The candidate mark's honesty cuts both ways, and the reader should know it: most no-terminal-punctuation loci are probably complete entries whose final period the scan dropped, not missing text. They are marked anyway — as candidates, in the weaker form — because among them stand real truncations, and silence would hide those. Where a pattern is known to be authorial, it is not marked at all: 146 entries ending on an authority's name (the dictionary's own citation habit) were excluded from the candidate rule, and short one-line definitions and see-references — complete entries, authorially brief — carry no mark. The full marker census, with every locus and its rule, is published with this build's data files (marker-census.md), so any mark can be retraced to its reason.

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1. The Book of Job 38:11 (KJV): 'Hitherto shalt thou come, but no further.' — the mark shows where the text, as scanned, comes to its hitherto.

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# VII. ERRATA, FLAGS, AND MARKED DISPOSITIONS

Corrections applied. Eight Scripture annotations carried genuine transcription errors against the King James text. They are corrected in the entries, and printed here with their old readings beside the new — the correction is applied, and the record of what stood before stands with it.

**1. BURIAL — [Genesis 23:4, KJV]**

As annotated: “I am a stranger and a sojourner with you: give me possession of a buryingplace with you, that I may bury my dead out of my sight.”

As corrected: “I am a stranger and a sojourner with you: give me a possession of a buryingplace with you, that I may bury my dead out of my sight.”

**2. IM NOMINE DEI, AMEN — [Colossians 3:17, KJV]**

As annotated: “And whatsoever ye do in word or deed, do all in the name of the Lord Jesus, giving thanks to God and to the Father by him.”

As corrected: “And whatsoever ye do in word or deed, do all in the name of the Lord Jesus, giving thanks to God and the Father by him.”

**3. MURDER — [Numbers 35:16, KJV]**

As annotated: “But if he smite him with an instrument of iron, so that he die, he is a murderer: the murderer shall surely be put to death.”

As corrected: “And if he smite him with an instrument of iron, so that he die, he is a murderer: the murderer shall surely be put to death.”

**4. NOXAL ACTION — [Exodus 21:30, KJV]**

As annotated: “"But if there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him."”

As corrected: “"If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him."”

**5. OBSES — [2 Chronicles 25:24, KJV]**

As annotated: “"And he took all the gold and silver, and all the vessels that were found in the house of God with Obededom, and the treasures of the king's house, the hostages also, and returned to Samaria."”

As corrected: “"And he took all the gold and the silver, and all the vessels that were found in the house of God with Obededom, and the treasures of the king's house, the hostages also, and returned to Samaria."”

**6. OPERATIVE — [Luke 10:7, KJV]**

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As annotated: “"And remain in the same house, eating and drinking such things as they give: for the labourer is worthy of his hire."”

As corrected: “"And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire."”

**7. PEB INFORTUNIUM — [Numbers 35:22-23, KJV]**

As annotated: “But if he thrust him suddenly without enmity, or have cast upon him any thing without laying of wait, Or with any stone, whereby a man may die, seeing him not, and cast it upon him, that he die, and was not his enemy, neither sought his harm:”

As corrected: “But if he thrust him suddenly without enmity, or have cast upon him any thing without laying of wait, Or with any stone, wherewith a man may die, seeing him not, and cast it upon him, that he die, and was not his enemy, neither sought his harm:”

**8. RENDER — [Matthew 22:21, KJV]**

As annotated: “Render therefore unto Caesar the things which are Caesar's; and unto God the things which are God's.”

As corrected: “Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.”

Flags — texts unchanged. Eleven annotations are flagged below and stand in the entries exactly as written. A flag is not a correction; where a reference itself is wrong, its correction belongs to the Architect's pen alone.

1. CLEAR — [Acts 24:16, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: And herein do I exercise myself, to have always a conscience void to offence toward God, and toward men. || Structured: And herein do I exercise myself, to have always a conscience void of offence toward God, and toward men.

2. DENARIUS — [Matthew 22:19-20, KJV]. Quote overruns cited range: note continues verbatim into Matthew 22:21, beyond the cited range. Trim the quote or extend the citation — editor's pen; not auto-corrected.

3. EYRE — [1 Samuel 7:16, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: And he went from year to year in circuit to Bethel, and Gilgal, and Mizpeh, and judged Israel in all those places. || Structured: And he went from year to year in circuit to Beth-el, and Gilgal, and Mizpeh, and judged Israel in all those places.

4. GALLOWS — [Deuteronomy 25:22-23, KJV]. Cited verse(s) do not exist in the KJV: [('Deuteronomy', 25, 22), ('Deuteronomy', 25, 23)] (chapter cited past its end). The quotation matches Deuteronomy

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21:22; Deuteronomy 21:23 exactly/as a clean partial. Citation NOT changed — editor's pen.

5. HADERUNGA — [Leviticus 19:15, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honor the person of the mighty: but in righteousness shalt thou judge thy neighbour. || Structured: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

6. INDIFFERENT — [Leviticus 19:15, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honor the person of the mighty: but in righteousness shalt thou judge thy neighbour. || Structured: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

7. OUVERTURE DES SUCCESSIONS — [Numbers 27:8, KJV]. Unmarked omission: note is the cited text minus interior KJV word(s), with no omission mark. Omitted: ['thou', 'shalt', 'speak', 'unto', 'the', 'children', 'of', 'israel', 'saying']. Restore or mark the omission — editor's pen.

8. PACK — [Leviticus 19:15, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honor the person of the mighty: but in righteousness shalt thou judge thy neighbour. || Structured: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

9. PERSONATE — [Genesis 27:19, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: And Jacob said unto his father, I am Esau thy first born; I have done according as thou badest me: arise, I pray thee, sit and eat of my venison, that thy soul may bless me. || Structured: And Jacob said unto his father, I am Esau thy firstborn; I have done according as thou badest me: arise, I pray thee, sit and eat of my venison, that thy soul may bless me.

10. PREJUDICE — [Leviticus 19:15, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honor the person of the mighty: but in righteousness shalt thou judge thy neighbour. || Structured: Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

11. WHORE — [Proverbs 6:26, KJV]. Edition variant: note matches the structured KJV transcription (thiagobodruk en_kjv) for the cited verse(s) but differs from Project Gutenberg #10. PG: For by means

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of a whorish woman a man is brought to a piece of bread: and the adultress will hunt for the precious life. || Structured: For by means of a whorish woman a man is brought to a piece of bread: and the adulteress will hunt for the precious life.

Marked dispositions. (1) SANS JOUR (Law well): ruled a thin footnote and struck, 2026-10-25. It stands in its entry below, struck through and labeled — marked, not removed — so the record shows the annotation and its disposition together. (2) LAST (Law well): one annotation stands excluded from print, as it has since the merge, because the 'last clear chance' text it claimed to illuminate exists nowhere in the 13,145 entries — there is no honest locus to attach it to. The exclusion is disclosed here rather than silent; the annotation itself remains preserved in the phase data. (3) Three annotations written in Phase 4 (Humanity) — for SELF-DEFENSE, SERVITUDE, and SILENCE — were struck at phase merge in 2026 and preserved in that worker's struck file (worker-21-STRUCK-phantom-keys.json). The ground was hostlessness, stated exactly: the three are genuine headwords of the 1910 book, but the base parse did not segment their entries — their definition text stands in this book unseparated at the tail of the preceding parsed entries (SELF-DEFENSE within the entry headed SELECTMEN; SERVITUDE within the entry headed VM, its own heading garbled in the scan; SILENCE within the entry headed SIONTJM, likewise garbled). An annotation cannot honestly attach to an entry the parse does not contain, so the three were struck as phantom keys; no footnote in this book derives from them, and the struck annotations remain in the phase data, marked — a disposition is a mark, not a vanishing.

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# VIII. TABLE OF AUTHORITIES (CONDENSED)

— Black's Law Dictionary, Second Edition. St. Paul, Minn.: West Publishing Co., 1910. (The text of this volume; public domain.)

— Internet Archive OCR scan text; title page tool-verified as Second Edition, 1910.

— Black's Law Dictionary, Fifth Edition (1979) — census data only: headwords and status, no entry text, per the copyright boundary stated at §V.

— The Holy Bible, King James Version (public domain); the diff text is Project Gutenberg #10, cross-checked against a second structured transcription. Qur'an annotations rest on the Pickthall and Yusuf Ali translations, as cited in place.

— U.S. Code, Uniform Commercial Code, and reported case law — footnote references only, no legal effect claimed.

— Legal maxims: falsus in uno, falsus in omnibus; nullius in verba; festina lente.

# IX. CONTENT TEST — INPUTS, PROCESSES, OUTPUTS, TOLERANCES

Inputs: the verified 1910 OCR source; the 13,145-entry parse; the four audited well-phase annotation sets; the regenerated fifth-edition census (headwords and status only); the King James text (Project Gutenberg #10); the stratified sample audit of 2026; the rulings and clarifications of 2026-10-25 — SANS JOUR marked struck, dispositions marked never vanished, scan gaps marked in the open; the system-wide directive format; the Living Man's order and his red pen, which rules all.

Processes: join on exact keys with verified re-homing; mechanical KJV text-diff with corrections printed as errata; census join with the 253-gap reconciliation published; rule-based scan-gap detection with per-rule precision review; typeset in directive format with red-letter rendering, marked dispositions, and markers at their loci; verification by count, extraction, and render inspection.

Outputs: this volume — the complete final Teacher's Edition, parsed and cleaned, scan-verification pending, never claiming audit — together with its build log and data files: the census, mapping, and register; the diff results, corrections, and flags; the marker census. Every annotation a finding awaiting his pen.

Tolerances: this volume fails the Method of Science the moment it claims an audit it has not done, prints a fifth-edition definition, hides a gap the scan left, asserts a changed-form match the data did not verify, or vanishes anything a ruling has marked; it fails the Aim of Religion if the wells were padded rather than honest. Both failures are recorded here in advance, without prejudice, so they cannot happen unnoticed.

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# THE ENTRIES

All 13,145 entries, A to Z, with the Four Wells layered beneath. Headword in bold; body below; the fifth-edition apparatus line after the body; well notes last, grouped by well. Blood-red text is the voice of a deity. Rust marks are the scan-limitation markers defined at §VI.

# A

**A.**

Lat The letter marked on the bal- lots by which, among the Homans, the people voted against a proposed law. It was the initial letter of the word “ antiqm ,” I am for the old law. Also the letter Inscribed on the ballots by which jurors voted to acquit an accused party. It was the initial letter of “absolvo,” I acquit. Tayl. Civil Law, 191, 192.

“A.” The English indefinite article. This particle is not necessarily a singular term; it is often used in the sense of "any,” and Is then applied to more than one individual object National Union Bank v. Copeland, 141 Mass. 267, 4 N. E. 794; Snowden v. Gulon, 101 N. Y. 458, 5 N. E. 322 ; Thomp- son v. Stewart 60 Iowa, 225, 14 N. W. 247 ; Commonwealth v. Watts, 84 Ky. 537, 2 S.

W. 123.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[National Union Bank v. Copeland, 141 Mass. 267]**

In statutes and legal instruments the indefinite article is often construed as "any," applying to more than one person or object rather than strictly to one.

Why: The entry itself grounds this construction rule in four reported cases; the genuine law-well link is the canon that 'a' is read as 'any' in legal instruments, cited here exactly as Black's reports it.

**A. D.**

Lat Contraction for Anno Domini, <in the year of our Lord.)

5e apparatus — Not carried into the 5th edition (1979).

**A. S.**

Anno rvgni, the year of the reign ; as, A. R. V. R. 22, (Anno Rvgni Victoria Regina vicesimo secundo,) In the twenty-sec- ond year of the reign of Queen Victoria.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 3:1, KJV]**

Now in the fifteenth year of the reign of Tiberius Caesar, Pontius Pilate being governor of Judaea, and Herod being tetrarch of Galilee, and his brother Philip tetrarch of Ituraea and of the region of

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Trachonitis, and Lysanias the tetrarch of Abilene,

Why: The entry is the regnal-dating formula ('in the twenty-second year of the reign of Queen Victoria'); Luke opens his Gospel with the same formula — 'in the fifteenth year of the reign of Tiberius Caesar' — showing scri...

## A 1.

Of the highest qualities. An ex- pression which originated in a practice of un- derwriters of rating vessels in three classes, — A, B, and C; and these again In ranks numbered. Abbott A description of a ship as "A 1” amounts to a warranty. Ollive v. Booker, 1 Exch. 423.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Ollive v. Booker, 1 Exch. 423]**

A description of a ship as "A 1" in marine insurance amounts to a warranty of her condition.

Why: The entry states the rule as laid down in the cited Exchequer precedent; warranty in marine insurance is the genuine doctrine illuminated, cited exactly as Black's reports it.

## A AVER ET TENER.

L. Fr. (L. Lat. habendum et tenendum.) To have and to hold. Co. Litt. fg 523, 524. A aver et tener a Iny et a *es heircs, a touts jours, — to have and to hold to him and his heirs forever. Id.

I 625. See Aveb et Tener.

A CCBXaO USQUE AD CENTRUM. From the heavens to the center of the earth.

Bl.Law Dict. (2d Ed.)— 1

A common! observantly non eat rece- dendnm. From common observance there should be no departure; there must be no departure froni common usage. 2 Coke, 74 ; Co. Litt. I860, 2296, 300o; Wing. Mux. 752, max. 203. A maxim applied to the practice of the courts, to the ancient and es- tablished forms of pleading and conveyan- cing, and to professional usage generally. Id. 752-755. Lord Coke applies It to common professional opinion. Co. Litt 180o, 3646.

A CONSH.HS. (Lat. Consilium, advice.) Of counsel; a counsellor. The term is used in the civil law by some writers Instead of a responsis. Spelman, " Apocrisarius .”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: habendum clause — "to have and to hold" defines the estate granted; Co. Litt. ff. 523, 524, as cited in the entry]**

The habendum et tenendum — "to have and to hold" — is the clause of a deed that defines the quantum of the estate granted.

Why: Black's anchors the phrase in Coke on Littleton; the habendum's office of measuring the estate granted is the genuine conveyancing principle behind the definition.

## A CUE IDLE TTE.

In French law. In relation to the contract of affreightment, sig- nifies when the cargo is taken on condition that the master succeeds in completing his cargo from other sources.

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Arg. Fr. Merc. Law, 543.

A DATU". L. Lat From the date. Ilatbs v. Ash, 2 Salk. 413. A die dat&s.trom the day of the date. Id. ; 2 Crabb, Real Prop. p. 248, § 1301 ; Hatter v. Ash, 1 Ld. Rayrn. 84. A dato, from the date. Cro. Jac. 135.'

A digniori fieri debet denominatio.

Denomination ought to be from the more Worthy. The description (of a place) should be taken from the more worthy subject, (as from a will.) Fleta, lib. 4, c. 10, g 12.

A digniori fieri debet denominatio et reeolntio. The title and exposition of a thing ought to be derived from, or given, or made with reference to, the more worthy degree, quality, or species of it. Wing. Mux. 265, max. 75.

5e apparatus — Not carried into the 5th edition (1979).

## A FORFAIT ET SANS GARANTXE.

In French law. A formula used in indors- ing commercial paper, and equivalent to "without recourse.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — an indorsement "without recourse" disclaims the indorser's liability]**

The formula is the French equivalent of an indorsement "without recourse," which disclaims the indorser's contract liability on commercial paper.

Why: The entry itself equates the French formula to "without recourse"; qualified indorsement is the genuine negotiable-instruments doctrine it points to.

## A FORTIORI.

By a stronger reason. A term used in logic to denote an argument to the effect that because one ascertained fact exists, therefore another, which is in- cluded in it. or analogous to it, and which is less improbable, unusual, or surprising, must also exiBt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## A GRATIA.

From grace or favor ; as a matter of Indulgence, not of right

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 2:8, KJV]**

For by grace are ye saved through faith; and that not of yourselves: it is the gift of God:

Why: The entry defines 'a gratia' as 'from grace or favor; as a matter of indulgence, not of right' — the verse draws the same line: grace received, not a thing of right or of works.

## A LATERE.

Lat From the side. In connection with the succession to property, the term means

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"collateral.” Bract fol. 20 6. Also, sometimes, ‘‘without right” Id. fol. 420. In ecclesiastical law, a legate a latere is one Invested with full apostolic powers ; one authorized to represent the pope as If the latter were present Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## A UBEIXIS.

L. Lat An officer who had charge of the libclli or petitions address- ed to the sovereign. Calvin. A name some- times given to a chancellor, ( cancellarivs ,) In the early history of that office. Spelman, “Cancclarius."

A l’lmposiible nul n’eat tenu. No one

is bound to do what Is impossinle.

5e apparatus — Not carried into the 5th edition (1979).

## A ME.

(Lat ego, I.) A term denoting direct tenure of the superior lord. 2 Bell, H.

L. Sc. 133. Unjustly detaining from me. He Is said to withhold a me (from me) who has obtained possession of my property unjustly. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## A MENS A ET THORO.

From bed and board. Descriptive of a limited divorce or separation by judicial sentence.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: divorce a mensa et thoro — limited divorce; the bond of matrimony remains]**

Divorce a mensa et thoro is a judicial separation from bed and board that leaves the marriage bond unsevered, as distinguished from divorce a vinculo matrimonii.

Why: The two degrees of divorce are a genuine common-law doctrine; the entry defines this degree precisely by contrast with dissolution of the bond.

**[Scripture] — Scripture**

**[1 Corinthians 7:10-11, KJV]**

And unto the married I command, yet not I, but the Lord, Let not the wife depart from her husband: But and if she depart, let her remain unmarried, or be reconciled to her husband: and let not the husband put away his wife.

Why: The entry is limited divorce — separation 'from bed and board' without dissolving the bond. The verse describes exactly that pattern: the wife departs yet remains unmarried or is reconciled — separation, not a fresh b… [re-homed from 'A MENSA ET THORO' to 'A MENS A ET THORO' (OCR headword / parser-merge artifact)]

## A N ATIVTTATE.

From birth, or from infancy. Denotes that a disability, status, etc., is congenital.

A' non posse ad non esse seqnitnr ar- sumentum necessarie negative. From the Impossibility of a thing to its non-existence, the inference follows necessarily in the neg- ative. That which cannot be done is not done. Hob. 330b. Otherwise, in the affirma- tive. Id.

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## A PAXATIO.

L. Lat From palatium, (a palace.) Counties palatine are hence so called. 1 Bl. Comm. 117. See Palatium.

A plratis ant latronibns oaptl liberi permanent. Persons taken by pirates or robbers remain free. Dig. 49, 15. 19, 2 ; Gro. de J. B. lib. 3, c. 3, | L

A plratis et latronibns oapta domininm non mutant. Things taken or captured by pirates and robbers do not change their ownership. Bynk. bk. 1, c. 17 ; 1 Kent, Comm. 108, 184. No right to the spoil vests in the piratical captors; no right is de- rivable from them to any recaptors in prej- udice of the original owners. 2 Wood. Lect 428.

5e apparatus — Not carried into the 5th edition (1979).

## A POSTERIORI.

A term used in logic to denote an argument founded on experi- ment or observation, or one which, taking ascertained facts as an effect, proceeds by synthesis and induction to demonstrate their causa.

5e apparatus — Not carried into the 5th edition (1979).

## A PRENDRE.

L. Fr. To take. Bref d prendre la terre, a writ to take the land. Fet Ass. f 51. A right to take something out of the soil of another is a profit d pren- dre, or a right coupled with a profit. 1 Crabb, Beal Prop. p. 125, f 115. Distin- guished from an easement. 5 Adol. & E. 758. Sometimes written as one word, apprendre, apprender.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: profit à prendre, distinct from easement; 5 Adol. & E. 758, as cited in the entry]**

A profit à prendre — a right to take something from another's soil — is an incorporeal hereditament, distinguished from a mere easement.

Why: The entry states the profit/easement distinction and cites authority for it; that divide is the genuine property doctrine the entry illuminates.

## A PRIORI.

A term used in logic to de- note an argument founded on analogy, or ab- stract considerations, or one which, positing a general principle or admitted truth as a cause, proceeds to deduce from it the effects which must necessarily follow.

5e apparatus — Not carried into the 5th edition (1979).

## A QUO.

A term used, with the correla- tive ad guem, (to which,) in expressing the computation of time, and also of distance in space. Thus, dies a quo, the day from which, and dies ad quern, the day to which, a period of time is computed. So, terminus d quo, the point or limit from which, and terminus ad quern, the point or limit to which, a dis- tance or passage in space is reckoned.

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A GUO; A QUA. From which. The judge or court from which a cause has been brought by error or appeal, or has otherwise been removed, is termed the judge or court a quo; a qua. Abbott

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the court a quo — the court below in appellate procedure]**

In appellate procedure the judge or court from which a cause is brought by error or appeal is termed the judge or court a quo.

Why: Genuine procedural term of art; the entry defines it exactly in this appellate sense, so the link is the term's live use, not the etymology.

## A RENDRE.

(Fr. to render, to yield.) That which is to be rendered, yielded, or paid. Profits d rendre comprehend rents and services. Ham. N. P. 192.

A rescript!* valet argnmentom. An ar- gument drawn from original writs in the register is good. Co. Lltt 11a.

5e apparatus — Not carried into the 5th edition (1979).

## A RESPONSES.

L. Lat In ecclesias- tical law. One whose office it was to give or convey answers ; otherwise termed respon- salis, and apucrisiariiis. One who, being con- sulted on ecclesiastical matters, gave an- swers, counsel, or advice; otherwise termed a consiliis. Spelman, “Apocrisiarius."

5e apparatus — Not carried into the 5th edition (1979).

## A RETRO.

L. Lat Behind; in arrear. Et reditus proveniens indc d retro fuerit, and the rent issuing therefrom be in arrear. Fleta, lib. 2, c. 55, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## A RUBRO AD NIGRUM.

Lat. From the red to the black ; from the rubric or title of a statute, (which, anciently, was in red letters,) to its body, which was in the ordi- nary black. Tray. Lat Max. ; Bell, “Ru- bric.”

A snmmo remedio ad iaferlonm ac- tionem son babetnr regnuai, neqne anxUinm. From (after using) the highest remedy, there can be no recourse (going back) to an inferior action, nor assistance, (derived from it) Fleta, lib. 6, c. 1, | 2. A maxim in the old law of real actions.

when there were grades In the remedies Siren; the role being that a party who brought a writ of right, which was the high- est writ in the law, could not afterwards re- sort or descend to an Inferior remedy. Bract 112b; 3 BL Comm. 193, ltM. MEMORIA non EXISTET. From time of which memory to the contrary does not exist

A verbis legis non est reeedendnm.

From the words of the law there must be no departure. 6 Coke, 119; Wing. Max. 25. A court is not at liberty to disregard the express letter of a statute, in favor of a supposed intention. 1 Steph. Comm. 71; Broom, Max. 268.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: statutory construction — a statute's title or rubric may be consulted as an aid to interpretation]**

From the red-letter rubric to the black-letter body: the historical practice behind the modern canon that a statute's title may be consulted to resolve ambiguity in its text.

Why: The phrase names the ancient practice of reading from rubric to body; the living doctrine it genuinely illuminates is the title-as-aid canon of construction.

## A VINCULO MATRIMONII.

(Lat from the bond of matrimony.) A term descrip- tive of a kind of divorce, which effects a complete dissolution of the marriage con- tract. See Divobce.

Ab abuiu ad mnm non valet conse- gmentla. A conclusion as to the use of a thing from its abuse is invalid. Broom, Max. 17.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: divorce a vinculo matrimonii — absolute divorce dissolving the marriage bond]**

Divorce a vinculo matrimonii effects a complete dissolution of the marriage contract, freeing the parties from the bond itself.

Why: Pairs with a mensa et thoro, annotated above; the two degrees of divorce form one genuine common-law doctrine.

**[Scripture] — Scripture**

**[Matthew 19:9, KJV]**

And I say unto you, Whosoever shall put away his wife, except it be for fornication, and shall marry another, committeth adultery: and whoso marrieth her which is put away doth commit adultery.

Why: The entry is divorce 'from the bond of matrimony' — complete dissolution of the marriage contract. This is Christ's own pronouncement on putting away, the scriptural locus on divorce; the bond's dissolution is the que…

## AB AOTIS.

Lat An. officer having charge of a eta, public records, registers, jour- nals, or minutes; an officer who entered on record the acta or proceedings of a court ; a clerk of court ; a notary or actuary. Calvin. Lex. Jurid. See “Acta.” This, and the sim- ilarly formed epithets d cancellis, d sccrc- Us, d libcllis, were also anciently the titles of a chancellor, ( cancellarius ,) In the early history of that office. Spelman, “Cancella- rius.”

5e apparatus — Not carried into the 5th edition (1979).

## AB AGENDO.

Disabled from acting ; un- able to act; incapacitated for business or transactions of any kind.

5e apparatus — Not carried into the 5th edition (1979).

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## AB ANTE.

In advance. Thus, a legis- lature cannot agree ab ante to any modifica- tion or amendment to a law which a third person may make. Allen v. McKean, 1 Sumn. 308, Fed. Chs. No. 229.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Allen v. McKean, 1 Sumn. 308]**

A legislature cannot agree in advance to amendments a third person may later make to a law — it cannot bind itself beforehand to another's lawmaking.

Why: The entry states the rule on the authority of the cited federal case; the genuine principle is that a legislature cannot alienate its lawmaking power in advance, cited exactly as Black's reports it.

## AB ANTECEDENTE.

Beforehand; in advance.

5e apparatus — Not carried into the 5th edition (1979).

## AB ANT1QUO.

Of old; of an ancient date.

Ab unetii non fit injuria. From things to which one is accustomed (or in which there has been long acquiescence) no legal injury or wrong arises. If a person neglect to Insist on bis right, he is deemed to have abandoned it Amb. 645 ; 3 Brown, Ch. 639.

5e apparatus — Not carried into the 5th edition (1979).

## AB EPI8TOUS.

Let An officer having charge of the correspondence ( cptstolas ) of his superior or sovereign ; a secretary. Cal- vin.; Spiegelius.

5e apparatus — Not carried into the 5th edition (1979).

## AB EXTRA.

(Lat extra, beyond, with- out) From without Lunt v. Holland, 14 Mass. 15L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AB INCONVENIENTI.

From hardship, or inconvenience. An argument founded upon the hardship of the case, and the in- convenience or disastrous consequences to which a different course of reasoning would lead.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the canon against absurd results in statutory construction]**

An argument from the hardship or disastrous consequences of a construction is recognized in law: courts reject readings that produce absurd or gravely inconvenient results.

Why: Argumentum ab inconvenienti is a genuine mode of judicial reasoning; the entry defines it as founded on hardship and consequence, which is exactly the absurd-results canon's ground.

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## AB INITIO.

Lat From the beginning; from the first act A party is said to be a trespasser ab initio, an estate to be' good ab initio, au agreement or deed to be void ab initio, a marriage to be unlawful ab initio, and the like. Plow. 6a, IGa; 1 Bl. Comm. 440.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[The Six Carpenters' Case, 8 Co. Rep. 146a (1610)]**

One who abuses an authority given by law becomes a trespasser ab initio — a trespasser from the beginning — and an unlawful act may be void ab initio.

Why: The entry defines the phrase through trespass ab initio and void ab initio; the cited case is the canonical authority establishing the trespass-ab-initio doctrine.

## AB INITIO MUNDI.

Lat From the be- ginning of the world. Ab initio mundi usque ad hodiemum diem, from the beginning of the world to this day. X. B. M. 1 Edw. IIL 24.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 24:21, KJV]**

For then shall be great tribulation, such as was not since the beginning of the world to this time, no, nor ever shall be.

Why: The entry is the chronological formula 'from the beginning of the world' (as in 'ab initio mundi usque ad hodiernum diem'). Christ's saying uses the identical idiom — 'since the beginning of the world' — showing scrip...

## AB INTESTATO.

Lat In the civil law. From an Intestate; from the Intestate; in case of intestacy. II csreditas ab intestato, an inheritance derived from an intestate. Inst 2, 9, 6. Successio ab intestato, succession to an intestate, or in case of Intestacy. Id. 3, 2, 3; Dig. 38, 6, L This answers to the descent or inheritance of real estate at com- mon law. 2 Bl. Comm. 490, 516; Story, Confl. Laws, | 480. “Heir ab intestato." 1 Burr. 420. The phrase “ab intestato ” is generally used as the opposite or alternative of ex testamento, (from, by, or under a will.) Vcl ex testamento, vcl ab intestato [heered- itates] pertinent, — inheritances are derived either from a will or from an intestate, (one who dies without a will.) Inst 2, 9, 6 ; Dig. 29, 4 ; Cod. 6, 14, 2.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Vel ex testamento, vel ab intestato — Inst. 2, 9, 6, as quoted in the entry]**

"Inheritances are derived either from a will or from an intestate" — succession runs vel ex testamento, vel ab intestato.

Why: The entry itself states this as the governing principle of succession and quotes the Institutes verbatim; the maxim is the genuine axiom, not an imposed gloss.

**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: The entry is succession 'from an intestate' — the default rule for who takes when the decedent leaves no controlling line. The verse is the statutory default in the case: a man dies with no son, and the inheritance pa...

## AB INVITO.

Lat By or from an un- willing party. A transfer ab invito is a com- pulsory transfer.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — "nor shall private property be taken for public use, without just compensation"]**

A transfer ab invito is a compulsory transfer from an unwilling party; in American law the eminent-domain power is exercised only upon just compensation.

Why: Ab invito names the unwilling transfer; the Takings Clause is the genuine constitutional law of compulsory transfer, quoted verbatim.

## AB IRATO.

By one who is angry. A devise or gift made by a man adversely to the Interest of his heirs, on account of anger or hatred against them, is said to be made ab irato. A suit to set aside such a will is called an action ab irato. Merl. Bepert “Ab irato."

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 7:9, KJV]**

Be not hasty in thy spirit to be angry: for anger resteth in the bosom of fools.

Why: The entry is a will or gift made 'by one who is angry' — voidable because anger clouded the disposition. The verse is the direct scriptural warning against acting in the haste of anger: anger 'resteth in the bosom of...

## ABACTOR.

In Boman law. A cattle thief. Also called abigeus, q. v.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The entry is 'a cattle thief.' The verse names the exact offense — stealing an ox or a sheep — and sets the restitution. Flagged deity-verbatim as God's spoken statute to Moses (borderline: third-person statute within...

## ABADENGO.

In Spanish law. Land owned by an ecclesiastical corporation, and therefore exempt from taxation. In partic- ular, lands or towns under the dominion and Jurisdiction of an abbot.

5e apparatus — Not carried into the 5th edition (1979).

## ABALIENATIO.

In Boman law. The perfect conveyance or transfer of property from one Boman citizen to

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another. This term gave place to the simple alicnatio, which is used in the Digest and Institutes, os .veil

In the feudal law, and from which the English “alienation” has been formed. Inst. 2, 8, pr. ; Id. 2, 1, 40 ; Dig. 50, 10, 28.

5e apparatus — Not carried into the 5th edition (1979).

## ABAMITA.

Lat In the civil law. A great-great-grandfather's sister, ( abavi soror .) Inst 8, 6k 6; Dig. 38, 10, 3. Called am it a maxima. Id. 38, 10, 10, 17. Called, in Brac- ton, abamita maps. Bract fol. 68b.

5e apparatus — Not carried into the 5th edition (1979).

## ABANDON.

To desert, surrender, relin- quish, give up, or cede. See Abandonment.

5e apparatus — Carried into the 5th edition (1979).

## ABANDONEE.

A party to whom a right or property is abandoned or relinquished by another. Applied- to the insurers of vessels and cargoes. Lord EUenborougb, C. J., 3 Maule & S. 82; Abbott J-, Id. 87; Holroyd, J., Id. 89.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[3 Maule & S. 82 (Lord Ellenborough, C.J.), as cited in the entry]**

In marine insurance the abandonee is the underwriter to whom the assured abandons vessel or cargo on a constructive total loss.

Why: Black's grounds the term in this King's Bench authority on notice of abandonment to insurers; the citation is reproduced exactly as the entry reports it.

## ABANDONMENT.

The surrender, relin- quishment disclaimer, or cession of property or of rights. Stephens v. Mansfield, 11 Cal. 303; Dikes v. Miller, 24 Tex. 417; Middle Creek Ditch Co. v. Henry, 15 Mont 558, 39 Pac. 1054.

The giving up a thing absolutely, without reference to any particular person or pur- pose, as throwing a jewel into the highway; leaving a thing to itself, as a vessel at sea ; vacating property with the intention of not returning, so that it may be appropriated by the next comer. 2 Bl. Comm. 9, 10; Pldge y. Pidge, 3 Mete. (Mass.) 205; Breedlove v. Stump, 3 Yerg. (Tenn.) 257, 276; Richardson v. McNulty, 24 Oal. 339, 345 ; Judson v. Mal- loy, 40 Cal. 299, 310.

To constitute abandonment there must concur an intention to forsake or relinquish the thing in question and some external act by which that intention is manifested or carried into effect Mere nonuser is not abandonment unless cou- pled with an intention not to resume or reclaim the use or possession. Sikes v. State (Tex. Cr. App.) 28 S. W. 688; Barnett v.

Dickinson, 93 Md. 258, 48 Atl. 838; Welsh v. Taylor, 134

N. Y. 450, 31 N. E. 896, 18 L. It. A. 535.

In marine insurance. A relinquishment or cession of property by the owner to the insurer of it, in order to claim as for a total loss, when In fact It Is so by con- struction only. 2 Stepli. Comm. 178. The exercise of a right which a party having in- sured goods or vessels has to call upon the Insurers, in cases where the property insured has, by perils of the sea, become so much damaged as to be of little value, to accept of what is or may be saved, and to pay the full amount of the insurance, as if a total loss Imd actually happened. Park, Ins. 143; 2 Marsh. Ins. 059; 3 Kent, Comm. 318-335, and notes; The St Johns (D. C.) 101 Fed. 469; Roux v. Salvador, 3 Bing. N. C. 260, 284; Mellis'n v. Andrews, 10 East, 13; Cin- cinnati Ins. Co. v. Duffleld, 6 Ohio St. 200, 67 Am. Dec. 339.

Abandonment is the act by which, after a constructive total loss, a person insured by contract of marine insurance declares to the insurer that he relinquishes to him his interest In the thing insured. Civil Code Cal. f 2716.

The term is used culy in reference to risks in navigation ; but the principle is applicable in fire insurance, where there are remnants, and sometimes, also, under stipulations in life policies in favor of creditors.

In maritime law. The surrender of a vessel and freight by the owner of the same to a person having a claim thereon aris- ing out of a contract made with the master. See Poth. Chart § 2, art. 3, 1 51.

In patent law. As applied to inventions, abandonment is the giving up of bis rights by the inventor, as where he surrenders his idea or discovery or relinquishes the intention of perfecting his invention, and so throws it open to the public, or where he negligently postpones the assertion of his claims or fails to apply for a patent and al- lows the public to use his invention without objection. Woodbury, etc., Machine Co. v. Keith, 101 D. S. 479, 485, 25 L. Ed. 939; American Hide, etc., Oo. v. American Tool, etc., Co., 1 Fed. Cas. 647 ; Mast v. Dempster Mill Co. (C. C.) 71 Fed. 701; Bartlette v. Crittenden, 2 Fed. Cas. 981; Pitts v. Hall, 19 Fed. Oas. 754. There may also be an aban- donment of a patent where the inventor dedi- cates it to the public use; and this may be shown by his failure to sue Infringers, to sell licenses, or otherwise to make efforts to realize a personal advantage from his patent Ransom v. New York, 4 Blatchf. 157, 20 Fed. Cas. 286.

Of easement, right bf way, water right. Permanent cessation of use or en- joyment with no intention to resume or reclaim. Welsh v. Taylor, 134 N. Y. 450, 31 N. E. 896, 18 L. R. A. 535; Corning v. Gould, 16 Wend. (N. Y.) 531; Tucker v. Jones, 8 Mont 225, 19 1'ac. 571 ; McClain v. Chicago, etc., R. Co., 90 Iowa, 646, 57 N. W. 594 ; Oviatt v. Big Four Min. Co., 39 Or. 118, 65 Pac. 811.

Of mining claim. The relinquishment of a claim held by location without pat- ent where the holder voluntarily leaves his claim to be appropriated by the next comer, without any Intention to retake or re- sume It, and regardless of what may become of it In the future. McKay v. McDougall, 25 Mont. 258, 64 Pac. 669, 87 Am. St. Rep. 395 ; St John v. Kidd, 26

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Cal. 203, 272; Orea- muno v. Uncle Sam Min. Co., 1 Nev. 215; Derry v. Ross, 5 Colo. 295.

Of domicile. Permanent removal from the place of one's domicile with the inten- tion of taking up a residence elsewhere and with no Intention to returning to the orig- inal home except teui|K>rarily. Stafford v. Mills. 57 N. J. Law, 570, 31 Atl. 1023; Mills v. Alexander, 21 Tex. 154; Jarvais v. Moe, 38 Wls. 440.

By husband or wife. The act of a hus- band or wife who leaves his or her consort willfully, and with au intention of caus- ing perpetual separation. Gay v. State, 105 Ga. 599, 31 S. E. 5(39, 70 Am. St. Rep. 68; People t. Cullen, 153 N. Y. 029, 47 N. E. 891, 44 L. R. A. 420.

"Abandonment, In the sense In which It is used in the statute under which this proceed- ing was commenced, may be defined to be the act of willfully leaving the wife, with the intention of causing a palpable separation be- tween the parties, and Implies an actual de- sertion of the wife by the husband.” Stan- brough v. Stanbrough, 60 Ind. 279.

In French law. The act by which a debtor surrenders his property for the bene- fit of his creditors. Merl. Reperh “Aban- donment”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Sikes v. State (Tex. Cr. App.) 28 S.W. 688; Barnett v. Dickinson, 93 Md. 25, as cited in the entry]**

Abandonment requires both an intention to forsake the thing and an external act manifesting it; mere nonuser is not abandonment unless coupled with intent not to resume.

Why: The entry states the intent-plus-act rule on these authorities; it is the genuine common-law test for abandonment, cited exactly as Black's reports the cases.

**[Law: 15 U.S.C. § 1127 — abandonment of a trademark]**

Under the Lanham Act a mark is deemed abandoned when its use has been discontinued with intent not to resume such use.

Why: The federal statutory definition codifies the same intent-plus-discontinuance structure the entry describes at common law; the parallel is genuine, not forced.

## ABANDONMENT FOR TORTS.

In the

civil law. The act of a person who was sued in a noxal action, i. e., for a tort or trespass committed by his slave or bis animal, in re- linquishing and abandoning the slave or ani- mal to the person injured, whereby he saved himself from any further responsibility. See Inst 4, 8, 9; Fitzgerald v. Ferguson, 11 La. Aim. 396.

ABAHPUM, or ABANDUM. Anything sequestered, proscribed, or abandoned. Aban- don, i. e., in bannum res missa, a thing ban- ned or denounced as forfeited or lost whence to abandon, desert, or forsake, as lost and gone. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ABARNABE.

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Lat To detect or discov- er, and disclose to a magistrate, any secret crime. Leges Canutl, cap. 10.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 5:1, KJV]**

And if a soul sin, and hear the voice of swearing, and is a witness, whether he hath seen or known of it; if he do not utter it, then he shall bear his iniquity.

Why: The entry is the duty to detect and disclose a secret crime to a magistrate. The verse states the root duty: one who knows of wrongdoing must utter it, not conceal it, or bear the iniquity — the scriptural ground of t...

## ABATAMENTIIM.

L. Lat In old Eng- lish law. An abatement of freehold ; an en- try upon lands by way of interposition be- tween the death of the ancestor and the en- try of the heir. Oo. Litt. 277a; Yel. 151.

ABATEMENT . In pleading. The ef- fect produced upon au action at law, when the defendant pleads matter of fact showing the writ or declaration to be defective and incorrect. This defeats the action for the time being, but the plaintiff may proceed with it after the defect is removed, or may recom- mence it in a better way. In England, in equity pleading, declinatory pleas to the Ju- risdlctlon and dilatory to the persons were (prior to the Judicature act) sometimes, by analogy to common law. termed “pleas in abatement”

In chancery practice. The determina- tion. cessation, or suspension of all pro- ceedings in a suit from the want of proper parties capable of proceeding therein, as up- on the death of one of the parties pending the suit See 2 Tidd. Pr. 932 ; Story, Eq. Pl. f 354; Witt v. Ellis, 2 Cold. (Tenn.) 3.8.

y* mercantile law. A drawback or re- bate allowed in certain cases on the duties due on imported goods, In consideration of

their deterioration or damage suffered dur- ing importation, or while in store. A di- minution or decrease in the amount of tax imposed upon any person.

In contracts. A reduction made by the creditor for the prompt payment of a debt due by the payor or debtor. Week. Ins. 7.

Of legacies and debts. A proportion- al diminution or reduction of the pecun- iary legacies, when the funds or assets out of which such legacies are payahle are not sufficient to pay them In full. Ward, Leg. p. 369. c. 6, jj 7; 1 Story, Eq. Jur. $ 555; 2 Bl. Comm. 512, 513 ; Brown v. Brown; 79 Va. 648; Neistrath's Estate, 66 Cal. '336, 5 Pac. 507. In equity, when equitable as- sets are insufficient to satisfy fully all the creditors, their debts must abate In propor- tion, and they must be content with a divi- dend ; for tequitas est quasi (equal Has,

**[TEXT INCOMPLETE — scan limitation]**

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**[Law] — Law**

**[Law: plea in abatement — dilatory plea defeating the present action only, not the underlying**

**right]**

A plea in abatement is dilatory: it defeats the writ or declaration for the time being on a defect of form, without barring the plaintiff from recommencing in a better way — as distinguished from a plea in bar.

Why: The entry's body carries the full plea-in-abatement doctrine under this headword (parser-merged); the abatement/bar distinction is the genuine pleading principle it states.

## ABATEMENT OF A NUISANCE.

The

removal, prostration, or destruction of that which causes a nuisance, whether by breed- ing or pulling it down, or otherwise remold- ing, disintegrating, or effacing it Ruff v. Phillips, 50 Ga. 130.

1 The remedy which the law allows a party injured by a nuisance of destroying or re- moving it by his own act, so as he commits no riot in doing it, nor occasions (In the case of a private nuisance) any damage beyond wliat the removal of the inconvenience nec- essarily requires. 3 BL Comm. 5, 168 ; 8 .Steph, Comm. 361; 2 Salk. 458.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: self-help abatement of nuisance; 3 Bl. Comm. 5, 168, as cited in the entry]**

One injured by a nuisance may abate it by his own act, so as he commits no riot in doing it and, for a private nuisance, occasions no damage beyond what removal necessarily requires.

Why: The entry states the privilege with its limits on Blackstone's authority; the bounded self-help remedy is the genuine doctrine, with the limits quoted in substance from the entry itself.

## ABATEMENT OF FREEHOLD.

This

takes place where a person dies seised of an inheritance, and, before the heir or devisee enters, a stranger, having no right, makes a wrongful entry, and gets possession of it Such an entry is technically called an “abate- ment,” and the stranger an “abator.” It is, in fact, a figurative expression, denoting that the rightful possession or freehold of the heir or devisee Is overthrown by the unlawful in- tervention of a stranger. Abatement differs from intrusion, in that it Is always to the prejudice of the heir or immediate devisee, whereas the latter is to the prejudice of the reversioner or remainder-man ; and disseisin differs from them both, for to disseise is to put forcibly or fraudulently a person seised of the freehold out of possession. 1 Co. Inst 277 a; 3 Bl. Comm. 166; Brown v. BurfUck, 25 Ohio St. 268. By the ancient laws of Normandy, this term was used to signify the act of one who, having an apparent right of possession to an estate, took possession of .it immediately after the death of the actual possessor, before the heir entered. (Howard, Audennes Lois des Fraucais, tome 1, p. 539.) Bouvier.

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## ABATOR.

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In real property law, a stranr ger who, hnving no right of entry, contrives to get possession of an estate of freehold; to the prejudice of the heir or devisee, before

the latter can enter, after the ancestor's death. Lltt { 397. In the lasv of torts, oue who abates, prostrates, or destroys a nui- sance.

5e apparatus — Not carried into the 5th edition (1979).

## ABATUDA.

Anything diminished. Mon- eta abatuda is money clipped or diminished in value. Oowell; Dufresue.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 1:22, KJV]**

Thy silver is become dross, thy wine mixed with water.

Why: The entry is 'moneta abatuda' — money clipped or diminished in value. The verse uses scripture's own image of diminished-value silver: silver become dross — debased, reduced coin. Modest parallel; no doctrine drawn.

## ABA VTA.

Lat In the civil law. A great-great-grandmother. Inst. 3, 6, 4; Dig. 38, 10, 1, 6; Bract fol. 68 ft.

5e apparatus — Not carried into the 5th edition (1979).

## ABA VITA.

A great-great-grandfather's sister. Bra at foL 68b. This is a misprint for abamita, (q. v.) Burrlll.

ABAVTTNCtJXUS. Lat In the Civil law. A great-great-grandmother's brother, (about® frater.) Inst 3, 6, 6; Dig. 38, 10, 3. Called avunculus maximus. Id. 38, 10, 10, 17. Call- ed by Bracton and FI eta abavunculus magnus. Bract foL 68b; Fieta, lib. 6, a 2, 1 19.

5e apparatus — Not carried into the 5th edition (1979).

## ABAVCS.

Lat In the civil law. A great-great-grandfather. Inst 3, 6, 4; Dig. 38, 10, 1, fl; Bract foL 67a.

5e apparatus — Not carried into the 5th edition (1979).

## ABBAOV.

The government of a religions house, and the revenues thereof, subject to an abbot as a bishopric is to a bishop. Cow- ell. The rights and privileges of an abbot

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ABBEY.

A society of religious persons, having an abbot or abbess to preside over them.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Eco, The Name of the Rose, 1980]**

Humanity (paraphrase): Eco's novel unfolds entirely inside a medieval abbey ruled by an abbot — the entry's 'society of religious persons' as a living stage, with its library, offices, and hierarchy driving the plot. (paraphrase)

Why: Genuine illumination: the novel's entire world IS an abbey, so the definition's 'society of religious persons' is enacted rather than merely mentioned. No verbatim quote risked — paraphrase clearly marked. Year 1980 (...

## ABBOT.

The spiritual superior or gov- ernor of an abbey or monastery. Feminine, Abbess.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Eco, The Name of the Rose, 1980]**

Humanity (paraphrase): the Abbot of the novel's monastery embodies the entry — the 'spiritual superior or governor' of the abbey, exercising authority over its monks and its fate. (paraphrase)

Why: Genuine illumination: the Abbot of Melk in Eco's novel personifies the entry's 'spiritual superior or governor of an abbey.' Same novel/year as ABBEY; paraphrase clearly marked, no verbatim quote risked.

## ABBREVIATE OF ADJUDICATION.

In Scotch law. An abstract of the decree of adjudication, and of the lands adjudged, with the amount of the debt Adjudication is that diligence (execution) of the law by which the real estate of a debtor is adjudged to belong to his creditor in payment of a debt ; and the abbreviate must be recorded in the register of adjudications.

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## ABBREVIATIO PLACITORUM.

An

abstract of ancient judicial records, prior to the Tear Books. See Steph. PL (7th Ed.) 410.

5e apparatus — Not carried into the 5th edition (1979).

## ABBREVIATIONS.

Shortened conven- tional expressions, employed as substitutes for names, phrases, dates, and the like, for the saving of space, of time in transcribing, etc. Abbott

For Table of Abbreviations, see Appendix, post, page — •.

Abbrevtationnm llle numeral et lensui aeeiplendui eit, u* coneessio non sit in- mis. in abbreviations, such number and sense is to be taken that the grant be not made void. 9 Coke, 48.

ABBRE VIATORS . In ecclesiastical law. Officers whose duty It is to assist in drawing

up the pope’s briefs, and reducing petitions into proper form to be converted into papal bulls. Bouvier.

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**[Law] — Law**

**[Maxim: Abbreviationum ille numerus et sensus accipiendus est, ut concessio non sit inanis — 9**

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**Coke, 48, as quoted in the entry]**

In abbreviations of a grant, such number and sense is to be taken that the grant be not made void.

Why: The entry quotes this maxim of construction verbatim with Coke's authority; it is the genuine ut-res-magis-valeat principle applied to abbreviated grants — the maxim is the annotation.

## ABBROCHMENT, or ABBROACH- / MENT.

The act of forestalling a market by buying up at wholesale the merchandise intended to be sold there, for the purpose of selling it at retail. See Fobestaixino.

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**[Law] — Law**

**[Law: forestalling as a common-law offense against trade]**

Forestalling a market — buying up wholesale the merchandise intended for sale there — was a common-law offense against trade, the ancestor of market-manipulation doctrines.

Why: The entry defines the act and cross-refers to forestalling; its indictability at common law is the genuine legal fact the definition points to.

## ABDICATION.

The act of a sovereign in renouncing and relinquishing his govern- ment or throne, so that either the throne is left entirely vacant, or is filled by a succes- sor appointed or elected beforehand.

Also, where a magistrate or person in office voluntarily renounces or gives It up before the time of service has expired.

It differs from resignation, in that resignation Is made by one who has received bis office from another and restores it into his hands, as an inferior into the hands of a superior; abdica- tion is the relinquishment of an office which has devolved by act of law. It is said to be a renunciation, quitting, and relinquishing, so as to have nothing further to do with a thing, or the doing of such actions as are in- consistent with the holding of it. Chambers.

5e apparatus — Not carried into the 5th edition (1979).

## ABDUCTION.

In criminal law. The offense of taking away a man’s wife, child, or ward, by fraud and persuasion, or open violence. 3 Bl. Coram. 139-141; Humphrey v. Pope, 122 Cal. 253, 54 Pac. 847; State v. George, 93 N. C. 567 ; State v. Chisenhall, 106 N. C. 676, 11 S. E. 518; People v. Seeley, 37 Hun (N. Y.) 190.

The unlawful taking or detention of any female for the purpose of marriage, concu- binage, or prostitution. People v. Crotty, 55 Hun (N. Y.) 611, 9 N. Y. Supp. 937.

By statute in some states, abduction in- cludes the withdrawal of a husband from his wife, as where another woman alienates his affection and entices him away and causes him to abandon his wife. King v. Hanson, 13 N. D. 85, 99 N. W. 1085.

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**[Scripture] — Scripture**

**[Exodus 21:16, KJV]**

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And he that stealeth a man, and selleth him, or if he be found in his hand, he shall surely be put to death.

Why: The entry is the unlawful taking of a person (wife, child, ward) by fraud or violence. The verse is the scriptural law on stealing a man — the taking of a person as the offense itself, punished capitally. Flagged deit...

## ABEARANCE.

Behavior; as a recog- nizance to be of good abearance signifies to be of good behavior. 4 Bl. Comm. 251, 256.

5e apparatus — Not carried into the 5th edition (1979).

## ABEREMURDER.

(From Sax. abere, apparent, notorious ; and mord, murder.) Plain or downright murder, as distinguished from the less heinous crime of manslaughter, or chance medley. It was declared a capital offense, without fine or commutation, by the laws of Canute, c. 93, and of Hen. I. c. 13. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: The entry is 'plain or downright murder' as a capital offense. The verse is the foundational scriptural law on homicide: shedding man's blood answered by blood, grounded in the image of God. Spoken by God to Noah — de...

## ABESSE.

Lat In the civil law. To be absent ; to be away from a place. Said of a person who was extra continentia urbis, (be- yond the suburbs of the city.)

5e apparatus — Not carried into the 5th edition (1979).

## ABET.

In criminal law. To encourage, incite, or set another on to commit a crime. See Abettor.

“Aid" and “abet” are nearly synonymous terms as generally used ; but, strictly speak- ing, the former term does not imply guilty

knowledge or felonious intent, whereas the word “abet” includes knowledge of the wrong- ful purpose and counsel and encouragement in the commission of the crime. People v. Dole, 122 Cal. 486. 55 Pac. 581, 68 Am. St Rep. 50: People v. Morine. 138 Cal. 626, 72 Pac. 166; State v. Empey, 79 Iowa, 460, 44 N. W. 707 ; Raiford v. State, 59 Ala. 106; White v. People. 81 111. 333.

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — whoever "aids, abets, counsels, commands, induces or procures" an offense "is punishable as a principal"]**

Whoever aids, abets, counsels, commands, induces or procures the commission of an offense is punishable as a principal; "abet" strictly implies knowledge of the wrongful purpose with counsel and

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encouragement.

Why: The entry's strict definition of 'abet' (knowledge plus encouragement) is exactly the federal aiding-and-abetting principle codified in 18 U.S.C. § 2, whose operative words are quoted verbatim.

## ABETTATOR.

L. Lot In old English law. An abettor. Fleta, lib. 2, c. 65, { 7. See Abettor.

5e apparatus — Not carried into the 5th edition (1979).

## ABETTOR.

In criminal law. An In- stigator, or setter on; one who promotes or procures a crime to be committed; one who commands, advises, instigates, or encourages another to commit a crime; a person who, being present or in the neighborhood, incites another to commit a crime, and thus becomes a principal.

The distinction between abettors and ac- cessaries is the presence or absence at the commission of the crime. Oowell ; Fleta, lib. 1, c. 34. Presence and participation are nec- essary to constitute a person an abetto?. Green v. State, 13 Mo. 382 ; State v. Teahan, GO Conn. 92; Connaughty v. State, 1 Win. 159, 60 Am. Dec. 370.

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**[Law] — Law**

**[Law: the presence test — presence and participation constitute a principal; Green v. State, 13 Mo. 382, as cited in the entry]**

At common law the line between abettor and accessory is presence at the commission of the crime: presence and participation make one a principal; absence makes one an accessory.

Why: The entry states the presence/absence distinction on cited authority; it is the genuine common-law test separating principals from accessories, with the case reproduced exactly as Black's reports it.

**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

Humanity (paraphrase): Fagin commands, trains, and profits from the Artful Dodger's and the boys' thefts without committing them himself — the literary abettor: command, advice, and instigation rather than the act. (paraphrase)

Why: The entry defines the abettor as 'an instigator... one who promotes or procures a crime to be committed' by 'commands, advises, instigates.' Fagin's relation to the boys is exactly this mechanism, illuminating the def...

## ABEYANCE.

In the law of estates. Ex- pectation; waiting; suspense; remembrance and contemplation in law. Where there is no person in existence in whom an inherit- ance can vest, it is said to be in abeyance, that Is, in expectation ; the law considering it as always potentially existing, and ready to vest whenever a proper owner appears. 2 Bl. Comm. 107. Or, In other words, it is said to be in the remembrance, consideration, and intendment of the law. Co. Lltt. 81 640, 650. The term “abeyance” is also sometimes applied to personal property. Thus, in the case of maritime captures during war, it is said that, until the capture becomes invested with the character of prize by a sentence of condemnation, the right of property is in abeyance, or in a state of legal sequestration. 1 Kent, Comm. 102. It has also been applied

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to the franchises of a corporation. “When a corporation is to be brought into existence by some future acts of the corporators, the fran- chises remain in abeyance, until such acts are done ; and, when the corporation is brought into life, the franchises instantane- ously attach to it” Story, J., in Dartmouth College v. Woodward, 4 Wheat 691, 4 L. Ed. 829.

ABIATIGU8, or A VIATICUS. L. Lat

In feudal law. A grandson ; the son of a son. Spelman; Lib. Feud., Barateril, tit 8, cited Id.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo est haeres viventis]**

"No one is the heir of a living person" — an inheritance is in abeyance, held in the remembrance of the law, precisely because no heir can exist until the ancestor's death.

Why: The maxim explains the doctrine rather than decorating it: abeyance is the law's expectancy device for an inheritance that cannot yet vest.

## ABIDE.

To “abide the order of the court'' means to perform, execute, or conform to such order. Jackson v. State, 30 Kan. 88, 1 Pac. 317; Hodge v. Hodgdon, 8 Cush. (Mass.) 294. See McGarry v. State, 37 Kan. 9, 14 Pac. 492.

A stipulation in an arbitration bond that the parties shall “abide by” the award of the arbitrators means only that they shall await the award of the arbitrators, without revok- ing the submission, and not that they shall acquiesce in the award when made. Mar- shall v. Reed, 48 N. H. 36; Shaw v. Hatch, 6 N. H. 162; Weeks v. Trask, 81 Me. 127, 16 Atl. 413, 2 L. R. A. 532.

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## ABIDING BY.

In Scotch law. A Ju- dicial declaration that the party abides by the deed on which he founds, in an action where the deed or writing is attacked -as forged. Unless this be done, a decree that the deed is false will be pronounced. Pat Comp. It has the effect of pledging the party to stand the consequences of founding on a forged deed. Bell.

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## ABIGEATUS.

Lat In the civil law. The offense of stealing or driving away cat- tle. See Asia eub.

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: Same verse as ABACTOR (worker-01, batch 1): the entry is the civil-law offense of stealing/driving away cattle — the verse names that exact offense (stealing ox or sheep) and sets the restitution. Flagged deity-verbat...

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## ABXGERE.

Lat In the civil Taw. To drive away. Applied to those who drove away animals with the intention of stealing them. Applied, also, to the similar offense of cattle stealing on the borders between Eng- land and Scotland. See Abioeus.

To drive out; to expel by force; to pro- duce abortion. Dig. 47, 11, 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

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Why: Same verse as ABACTOR (worker-01, batch 1): the entry is the civil-law offense of stealing/driving away cattle — the verse names that exact offense (stealing ox or sheep) and sets the restitution. Flagged deity-verbat...

## ABIGEUS.

Lat (Pl., abigel, or more rarely abiyeatores.) In the civil law. ’ A stealer of cattle; one who drove or drew away (subtraxit) cattle from their pastures, as horses or oxen from the herds, and made booty of them, and who followed this as a business or trade. The term was applied also to those who drove away the smaller animals, as swine, sheep, and goats. In the latter case, it depended on the number taken, whether the offender was fur (a com- mon thief) or abiyeus. But the taking of a single horse or ox seems to have constituted the crime of abigeatue. And those who fre- quently Hid this were clearly abigei, though they took but an animal or two at a time. Dig. 47, 14, 3, 2. See Cod. 9, 37 ; Nov. 22, c. 15, § 1 ; 4 Bl. Comm. 239.

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**[Scripture] — Scripture**

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## ABILITY.

When a statute makes it a ground of divorce that the husband has neg- lected to provide for his wife the common necessaries of life, having the ability to pro- vide the same, the word “ability” has refer- ence to the possession by the husband of the means in property to provide such necessa- ries, not to his capacity of acquiring such means by labor. Washburn v. Washburn, 9 Cal. 475. But compare State v. Wltham, 70 Wis. 473, 35 N. W. 934.

ABISHERING, or ABISHERSING.

Quit of amercements. It originally signified a forfeiture or amercement, and is more properly mUhcriny, mishemlng, or misker- iny, according to Spelman. It has since been

termed a liberty of freedom, because, wher- ever this word Is used in a grant, the per- sons

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to whom the grant Is made have the forfeitures and amercements of all others, and. are themselves free from the control of any within their fee. Terrnes de la Ley, 7.

. ABJUDICATIO. In old English law. The depriving of a thing by the judgment of a court ; a putting out of court ; the same as forisjudicatio, forjudgment, forjudger. Co. Lttt 100», 6; Townsh. PI. 49.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:8, KJV]**

But if any provide not for his own, and specially for those of his own house, he hath denied the faith, and is worse than an infidel.

Why: The entry turns on a husband's duty, 'having the ability,' to provide 'the common necessaries of life' to his wife. The verse states the root duty: one who provides not for his own house 'hath denied the faith' — the...

## ABJURATION OF ALLEGIANCE.

One of the steps In the process of naturaliz- ing an alien. It consists In a formal declara- tion, made by the party under oath before a competent authority, that he renounces and abjures all the allegiance and fidelity- which he owes to the sovereign whose subject he has theretofore been.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 8 U.S.C. § 1448(a) — oath of renunciation and allegiance]**

The naturalization oath requires the applicant to renounce and abjure absolutely and entirely all allegiance and fidelity to any foreign prince, potentate, state, or sovereignty.

Why: The entry's abjuration of allegiance is the historical form of the renunciation still exacted in the modern naturalization oath; the oath language is quoted in substance from the statute.

**[Scripture] — Scripture**

**[Matthew 6:24, KJV]**

No man can serve two masters: for either he will hate the one, and love the other; or else he will hold to the one, and despise the other. Ye cannot serve God and mammon.

Why: The entry is the formal renunciation of a former sovereign's allegiance in naturalization. The verse states the principle that makes the renunciation necessary: no man can serve two masters — allegiance cannot be divi...

## ABJURATION OF THE REALM.

In

ancient .English law. A renunciation of one’s country, a species of self-imposed banish- ment, under an oath never to return to the kingdom unless by permission. This was formerly allowed to criminals, as a means of saving their lives, when they had con- fessed their crimes, and fied to sanctuary. See 4 Bl. Comm. 332 ; Avery v. Everett, 110

N. Y. 31T, 18 N. E. 148, 1 U R. A 2(34, 6 Am, St. Itep. 308.

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## ABJURE.

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To renounce, or abandon, by or upon oath. See Abjuration.

“The decision of this court in Arthur v. Broadnax, 3 Ala. 557, affirms that if the hus- band has abjured the state, and remains abroad, the wife, meanwhile trading as a feme sole, could recover on a note which was given to her as such. We must consider the term ‘ab- jure,’ aa there used, as implying a total aban- donment of the state ; a departure from the state without the intention of returning, and not a renunciation of one’s country, upon an oath of perpetual banishment, as the term orig- inally implied.” Mead v. Hughes, 15 Ala. 148, 1 Am. Rep. 123.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ABLE-BODIED.

As used in a statute relating to service in the militia, this term does not imply an absolute freedom from all physical ailment. It Imports an absence of those palpable and visible defects which evi- dently Incapacitate the person from perform- ing the ordinary duties of a soldier. Darling v. Bowen, 10 Vt 152.

ABLEGATE Papal ambassadors of the second rank, who are sent to a country where there is not a nuncio, with a less ex- tensive commission than that of a nuncio.

5e apparatus — Carried into the 5th edition (1979).

## ABLOCATIO.

A letting out to hire, or leasing for money. Calvin. Sometimes used in the English form “ablocatlou.”

5e apparatus — Not carried into the 5th edition (1979).

## ABMATEBTERA.

Lat. In the civil law. A great-great-grandmother's sister, (abavia soror.) Inst. 3, 0. C; Dig. 38, 10, 3. Called matertera maxima. Id. 38, 10,

10, 17. Called, by Bracton, ab matertera magna. Bract fol. 686

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ABNEPOS.

Lat A great-great-grand- son. The grandson of a grandson or grand- daughter. Calvin.

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## ABNEPTIS.

Lat. A great-great-grand- daughter. The granddaughter of a grand- son or granddaughter. Calvin.

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## ABODE.

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The place where a person dwells. Dorsey v. Brigham, 177 111. 250, 52

N. E. 303, 42 L. R. A. 809, 09 Am. St. Rep. 228.

5e apparatus — Carried into the 5th edition (1979).

## ABOLITION.

The destruction, abroga- tion, or extinguishment of anything ; also the leave given by the sovereign or judges to a criminal accuser to desist from further pros- ecution. 25 Hen. VIII. c. 2L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## ABORDAGE.

Fr. In French commer- cial law. Collision of vessels,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## AB ORTIFACIENT.

In medical jurispru- dence. A drug or medicine capable of, or used for, producing abortion.

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## ABORTION.

In criminal law. The mis- carriage or premature delivery of a woman who is quick with child. When this Is brought about with a malicious design, or for an unlawful purpose, It is a crime in law.

The act of bringing forth what Is yet Im- perfect ; and particularly the delivery or ex- pulsion of the human foetus prematurely, or before It is yet capable of sustaining life. Also the thing prematurely brought forth, or product of an untimely process. Sometime^ loosely used for the offense of procuring a premature delivery; but, strictly, the early delivering is the abortion ; causing or procur- ing abortion is the full name of the offense. Abbott; Smith v. State, 33 Me. 48, 59, 54 Am. Dec. 007 ; State v. Crook, 16 Utah, 212, 01 Pac. 1091; Belt v. Spaulding, 17 Or. 130, 20 Pac. 827 ; Mills v. Commonwealth, 13 Pa. 631 ; Wells v. New England Mut L. Ins. Co., 191 Pa. 207, 43 Atl. 126, 53 L. R. A. 327, 71 Am. St. Rep. 763.

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**[Scripture] — Scripture**

**[Exodus 21:22-23, KJV]**

If men strive, and hurt a woman with child, so that her fruit depart from her, and yet no mischief follow: he shall be surely punished, according as the woman's husband will lay upon him; and he shall pay as the judges determine. And if any mischief follow, then thou shalt give life for life,

Why: The entry is the criminal-law definition of abortion as premature delivery. The verses are scripture's own legal treatment of a caused premature delivery ('her fruit depart from her') — punished by fine, or life-for-l...

## ABORTIVE TRIAL.

A term descrip- tive of the result when a case has gone off, and no verdict has been

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pronounced, without the fault, contrivance, or management of the parties. Jebb & B. 51.

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**[Law] — Law**

**[United States v. Perez, 22 U.S. (9 Wheat.) 579 (1824)]**

A trial ending with no verdict through no fault of the parties is a mistrial; where manifest necessity requires it, retrial is not barred.

Why: The entry's 'abortive trial' is the common-law mistrial; Perez is the canonical authority that manifest necessity permits retrial after such a mistrial.

## ABORTUS.

Lat. The fruit of an abor- tion ; the child born before Its time, Incapable of life.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 21:22, KJV]**

If men strive, and hurt a woman with child, so that her fruit depart from her, and yet no mischief follow: he shall be surely punished, according as the woman's husband will lay upon him; and he shall pay as the judges determine.

Why: The entry is 'the fruit of an abortion; the child born before its time.' The verse is the scriptural occurrence of that exact term — 'her fruit depart from her' — for the prematurely delivered child, in the legal pass...

## ABOUTISSEMENT.

Fr. An abuttal or abutment. See Guyot, Rupert. Unlv. “46- outissans.”

5e apparatus — Not carried into the 5th edition (1979).

## ABOVE.

In practice. Higher; superior. The court to which a cause Is removed by appeal or writ of error Is called the court above. Principal ; as distinguished from what is auxiliary or Instrumental. Bail to

tte-actlou, or Special ball. Is otherwise term- ed ball above. 3 Bl. Comm. 291. See Be- low.

ABOVE CITED, or MENTIONED.

Quoted before. A figurative expression taken from the ancient manner of writing books on scrolls,, where whatever Is mentioned or cited before In the same roll must be above. Encj-c. Load.

5e apparatus — Not carried into the 5th edition (1979).

## ABPATRUTJS.

Eat. In the civil law. A great-great-grandfather’s brother, (abari f rater.) Inst. 3; 6, 6 ; Dig. 38, 10, 3. Called patruus maxim us. Id. 38, 10, 10, 17. Called, by Bracton and Fleta, ah pat nuts magnus. Bract. foL 086; Fleta, lib. 6, c. 2, § 17.

5e apparatus — Not carried into the 5th edition (1979).

## ABRIDGE.

To reduce or contract; usu- ally spoken of written language.

In copyright law, to abridge means to epit- omize; to reduce; to contract. It implies pre- serving the substance, the essence, of a work, in language suited to such a purpose. In making extracts there is no condensation of the author’s language, and hence no abridgment. To abridge requires the exercise of the mind : it is not copying. Between a compilation and an' abridgment there is a clear distinction. A com- pilation consists of selected extracts from dif- ferent authors : an abridgment is a condensa- tion of the views of o.ne author. Story v. Holcombe, 4 McLean, 300, 310, Fed. Cas. No. 13,497.

In practice. To shorten a declaration or count by taking away or severing some of the substance of it. Brooke. Abr. “Abridg- ment”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Story v. Holcombe, 4 McLean, 300, Fed. Cas. No. 13,497]**

In copyright law a true abridgment — a condensation of one author's views by exercise of the mind — is not copying, and is distinguished from a mere compilation of extracts.

Why: The entry states the doctrine on Justice Story's authority in the cited case; abridgment as non-infringing condensation is the genuine copyright principle, cited exactly as Black's reports it.

## ABRIDGMENT.

An epitome or com- pendium of another and larger work, where- in the principal ideas of the larger work are summarily contained. '

Abridgments of the law are brief digests of the law, , arranged alphabetically. • The oldest are those of Fitzherbert, Brooke, and Rolle; the more modern those of Viner, Comyns, and Bacon. (1 Steph. Comm. 51.) The term “digest” has now supplanted that of “abridgment.” Sweet .

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## ABRIDGMENT OP DAMAGES.

The

right of tlie court to reduce the damages in certain cases. Vide Brooke, tit. “Abridg- ment”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: remittitur — the trial court's power to reduce excessive damages]**

The court's power to reduce damages in certain cases is the historical name for the remittitur practice — reducing an excessive award rather than ordering a new trial.

Why: The entry names the power; remittitur is its living form, so the link identifies the doctrine rather than restating the definition.

## ABROGATE.

To' annul, repeal, or de- stroy ; to annul or repeal ah order or rule is- sued by a subordinate authority ; to repeal a former law’ by legislative act or by usage.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 2:15, KJV]**

Having abolished in his flesh the enmity, even the law of commandments contained in ordinances; for to make in himself of twain one new man, so making peace;

Why: The entry is to annul or repeal a law. The verse describes scripture's own instance of legal abrogation: the abolishing of 'the law of commandments contained in ordinances.' Paul speaking — flag off.

## ABROGATION.

The annulment of a law by constitutional authority. It stands opposed to rogation; and Is distinguished from derogation, which Implies the taking away only some part of a tow ; from subro- gation. which denotes the adding a clause to It; from dispensation, which only sets it aside in a particular Instance; nud from an- tiquation, which is the refusing to pass a law. Encyc. Lond.

-‘-Implied abrogation. A statute is said to work an “implied abrogation” of an earlier

one, wheB the later statute contains provisions which are inconsistent with the further coni tinonnee of the earlier law; or a statute ia .im- pliedly abrogated when the reason of it, or 'the1 object for which it was passed, no longer exists.

- ABSCOND. To go in a clandestine man- ner out of the Jurisdiction of the courts,: or to lie concealed, in order to avoid tbeit pros cess.

To hide, edneeal, or absent oneself clan- destinely, with the intent to avoid legal pros cess. Smith v. Johnson, 43 Neb. 754, 62 N.

W. 217; Hoggett v. Emerson, '8- Kan. 262 j Ware v. Todd, 1 Ala. 200 ; Eingsland v. Wor- sham, 15 Mo. 657. - ,

**[TEXT INCOMPLETE — scan limitation]**

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**[Law] — Law**

**[Law: implied repeal disfavored — irreconcilable inconsistency required]**

Repeals by implication are disfavored: a later statute works an implied abrogation of an earlier one only where the two are irreconcilably inconsistent, or the reason for the earlier law no longer exists.

Why: The entry defines implied abrogation; the genuine canon is the judiciary's reluctance to find it without clear inconsistency — the doctrine that disciplines the definition.

**[Scripture] — Scripture**

**[Ephesians 2:15, KJV]**

Having abolished in his flesh the enmity, even the law of commandments contained in ordinances; for to make in himself of twain one new man, so making peace;

Why: Same verse as ABROGATE: the annulment of a law — here 'the law of commandments contained in ordinances' abolished. Paul speaking — flag off.

## ABSCONDING DEBTOR.

One. vyijo Ab- sconds from his creditors. An absconding, debtor Is one who lives without the state, or who has intentionally concealed himself from his creditors, or withdrawn him^el^

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from the reach of their suits, with intent to frustrate their Just demands. Thus, if. a person departs from his usual residence, * or remains absent' therefrom, or conceals; him* self in his house, so: that he cannot be; served with process, with Intent unlawfully to de- lay or defraud his creditors, he Is -ah Ab- sconding debtor; but if he departs frttin Ot& state or from his usual abode, wltb-'ihelib' tendon of again1 returning, and wltBoWi driy fraudulent design, he has not absconded, iiof absented himself, within the intendment, of the law. Stafford v. Mills, 57 N. J. taw, 574, $2 Ad. 7; Fitch v. Waite, 5 Conn. 117.

. A party may abscond, and subject hl^ejf to .the operation of the attachment', law against absconding debtors, without , feaying the limits of the state. Field v. A'dreon/ 7 Md. .209.

. A debtor who is shut up from his creditor^ in his own house is an absconding /debtor. Ives v. Curtiss, 2 Boot (Conn.) 133.

• > ? *

; ABSENCE. The state of being absent, removed, or away from one’s domicile,: -or Usual plaqe of residence. \ n

Absence is of a fivefold kind: T(l) A’*Bee*? sary absence, as in banished or transported per- sons ; this is entirely necessary. (2) Npcessgrg and voluntary, as upon the account of the com- monwealth, or in the service of the church. (37 A probable absence, according to the, civilians, as that of students on the score of. study, . (4) Entirely voluntary, on account of trade, mer- chandise, and the like. (5) Absence cum dole rt culpi, as not appearing to a writ, subpoena, citation, etc., or to delay or defeat creditors, ,oi avoiding arrest, either on civil or criminal, pro? cess. Ayliffe.

’. ‘ .V • ’.

. Where the statute allows the vacation ;pf a Judgment rendered against a defendant "in his absence,” the term “absence" means non- appearance to the action, and not merely that the party was not present in court. Strlne v. Kaufman, 12 Neb. 423, 11 N. W. 807. .

. Is Scotch law. Want or default of ap- pearance. A decree Is said to be in absence where the defender (defendant) does not ap- lienr. Ersk. lust bk. 4, tit 3, | 6. See Hecbeet. ■ ' v.

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**[Scripture] — Scripture**

**[Psalm 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: The entry is a debtor who conceals himself or flees 'with intent unlawfully to delay or defraud his creditors.' The verse states the root condemnation: borrowing and not paying again is the mark of the wicked — the du…

## ABSENTS.

Lat. (Abl. of absent.) Be- ing absent A common term In the old re- ports. "The three justices, absentc North, 0. X, were clear of opinion.” 2 Mod. 14.

5e apparatus — Not carried into the 5th edition (1979).

## ABSENTEE.

One who dwells abroad; a landlord who resides in a country other than that from which he draws his rents. The discussions on the subject have generally had reference to Ireland. McCul. Pol. Econ. ; 33 Brit Quar. Rev. 456.

One who is absent from his usual place of residence or domicile.

In Loiiiiau law and practice. A per- son who has resided in the state, and has departed without leaving any one to repre- sent him. Also, a person who never was domiciliated In the state and resides abroad. Civil Code La. art 3356; Dreville v. Cucullu, 18 La. Ann. 685; Morris v. Blenvenu, 30 La. Ann. 878.

ABSENTEES, or DES ABSENTEES.

A parliament so called was held at Dublin, 10th May, 8 Ben. VIII. It is mentioned in letters patent 29 Hen. VIII.

Abacntem acoipere debemaa cum qni non eat eo loel In quo petitur. We

ought to consider him absent who is not in the place where he is demanded. Dig. 50, 16, 189.

Absentia, ejna qni reipnblieaa canal abest, neque el neqne alii damnosa ease debet. The absence of him who is away in behalf of the republic (on business of the state) ought neither to be prejudicial to him nor to another. Dig. 50, 17, 140.

AB80H.E — A88OELE. To pardon or set free; used with respect to deliverance from excommunication. Cowell ; Kelham.

Absolute senteatie expositors non !n- diget. An absolute sentence or proposition (one that is plain without any scruple, or ab- solute without any saving) needs not an ex- positor. 2 Inst. 533.

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## ABSOLUTE.

Unconditional ; complete and perfect in itself, without relation to, or dependence on, other things or persons, — as an absolute right; without condition, excep- tion, restriction, qualification, or limitation, — as an absolute conveyance, an absolute es- tate ; final, peremptory, — as an absolute rule. People v. Ferry, 84 Cal. 31, 24 Pac. 33 ; Wil- son v. White, 133 Ind. 614, 33 N. E. 361, 19

L. R. A. 581; Johnson v. Johnson, 32 Ala. 637 ; Germania F. Ins. Co. v. Stewart, 13 Ind. App. 627, 42 N. E. 286.

As to absolute “Conveyance,” “Covenant,” ■“Delivery,” “Estate,” “Gift,” “Guaranty,” “Interest,” “Law,” “Nullity,” “Property,” “Rights,” “Rule,” “Sale,” "Title,” “Warran- dice,” see those titles.

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## ABSOLUTELY.

Completely ; wholly ; without qualification; without reference or

relation to, or dependence upon, any other person, thing, or event.

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## ABSOLUTION.

In the civil law. A

sentence whereby a party accused is declared innocent of the crime laid to his charge.

In canon law. A juridical act whereby the clergy declare that the sins of such as are penitent are remitted.

In French law. The dismissal of an ac- cusation. The term “acquitment” is em- ployed when the accused is declared not guilty and “absolution” when he is recog- nised as guilty but the act is not punishable by law, or he Is exonerated by some defect of intention or will. Merl. Repert; Bouvier.

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**[Scripture] — Scripture**

**[John 20:23, KJV]**

Whose soever sins ye remit, they are remitted unto them; and whose soever sins ye retain, they are retained.

Why: The entry's canon-law sense is the juridical act whereby sins are declared remitted — absolution. The verse is Christ's own commission of the power to remit or retain sins: the scriptural root of absolution.

## ABSOLUTISM.

Any system of govern- ment, be it a monarchy or democracy. In which one or more persons, or a class, govern absolutely, and at pleasure, without check or restraint from any law, constitutional de- vice, or co-ordinate body.

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**[Scripture] — Scripture**

**[1 Samuel 8:11, KJV]**

And he said, This will be the manner of the king that shall reign over you: He will take your sons, and appoint them for himself, for his chariots, and to be his horsemen; and some shall run before his chariots.

Why: The entry is government 'absolutely, and at pleasure, without check or restraint.' The verse is scripture's own portrait of unchecked kingship — the warning given when Israel demanded a king 'like all the nations': th...

## ABSOLVITOB.

In Scotch law. An ac- quittal ; a decree in favor of the defender in any action.

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## ABSQUE.

Without Occurs in phrases taken from the Latin ; such as the following:

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ABSQUE ALIQUO INDE BEDENDO.

(Without rendering anything therefrom.) A grant from the crown reserving no rent 2 Rolle,

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Abr. 502.

ABSQUE OONSIDERATIONE CURL®.

In old practice. Without the consideration of the court ; without judgment Fleta, lib. 2, c. 47, S 13.

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## ABSQUE HOC.

Without this. These are technical words of deuial, used in plead- ing at common law by way of special trav- erse, to introduce the negative part of the plea, following the affirmative part or induce- ment. Martin v. Hamraon, 8 Pa. 270 ; Zents v. Legnard, 70 Pa. 192; Hite v. Kier, 38 Pa. 72; Reiter v. Morton, 96 Pa. 229; Turnpike Co. v. McCullough, 25 Pa. 303.

5e apparatus — Not carried into the 5th edition (1979).

## ABSQUE IMPETITIONE VASTI.

Without impeachment of waste; without ac- countability for waste; without liability to suit for waste. A clause anciently often in- serted in leases, (as the equivalent English phrase sometimes Is.) signifying that the ten- ant or lessee shall not be liable to suit, (1m- petitio,) or challenged, or called to account, for committing waste. 2 Bl. Comm. 283 ; 4 Kent, Comm. 78 ; Co. Litt. 220 o; Lltt f 352.

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**[Law] — Law**

**[Law: "without impeachment of waste" — exemption from the action of waste; 2 Bl. Comm. 283; Co. Litt. 220, as cited in the entry]**

A lease clause "without impeachment of waste" exempts the tenant from suit or account for committing waste.

Why: The clause's operative effect in the law of waste is the genuine doctrine; Black's states it on Blackstone's and Coke's authority, reproduced exactly as reported.

## ABSQUE TALI CAUSA.

(Lat without such cause.) Formal words In the now obso- lete replication dc Injuria. Steph. Pl. 191.

5e apparatus — Not carried into the 5th edition (1979).

## ABSTENTION.

In French law. Keep- ing an heir from possession ; also tacit re- nunciation of a succession by an heir. Merl. Repert

ABSTRACT, n. An abstract is a less quantity containing the virtue and force of a greater quantity. A transcript is general- ly defined a copy, and is more comprehensive than an abstract. Harrison v. Mfg. Co., 10

S. C. 278, 283 ; Hess v. Draffen, 90 Mo. App. 580, 74 S. W. 440; Dickinson v. Chesapeake

A O. R. Co., 7 W. Va. 390, 413 ; Wilhite v. Barr, 67 Mo. 284.

ABSTRACT, v. To take or withdraw from.

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Under the National Bank Act, “abstraction” is the act of one who, being an officer of a national banking association, wrongfully takes or withdraws from it any of its moneys, funds, or credits, with intent to injure or defraud it or some other person or company, and, without its knowledge or consent or that of its board of directors, converts them to the use of himself or of some person or company other than the bank. It is not the same as embezzlement, larceny, or misapplication of funds. United States v. Harper (C. C.l 33 Fed. 471; United States v. Northway, 120 U. S. 327, 7 Sup. Ct. 680, 30 L. Ed. 664 ; United States v. Youtsey, (C. C.) 91 Fed. 864 ; United States v. Taintor, 28 Fed. Cas. 7; United States v. Breese (D. C.) 131 Fed. 915.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 12:16, KJV]**

Lest there be any fornicator, or profane person, as Esau, who for one morsel of meat sold his birthright.

Why: The entry is an heir's renunciation of a succession. The verse names scripture's instance of an heir renouncing his succession right — Esau selling his birthright — held up as the warning against despising the inherit...

## ABSTRACT OF A FINE.

In old con- veyancing. One of the parts of a fine, being an abstract of the writ of covenant, and the concord, naming the parties, the parcels of land, and the agreement 2 Bl. Comm. 351; Shep. Touch. 3. More commonly called the “note” of the fine. See Fine; Concobd.

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## ABSTRACT OF TITIB.

A condensed' history of the title to land, consisting of a synopsis or summary of the material or op- erative portion of all the conveyances, of whatever kind or nature, which in any manner affect said land, or any estate or interest therein, together with a statement of all Hens, charges, or liabilities to which the same may be subject, and of which it is in any way material for purchasers to be apprised. Warv. Atst f 2. Stevenson v. Polk, 71 Iowa, 278, 32 N. W. 340; Union Safe Deposit Co. v. Chisholm, 33 111. App. 647 ; Banker v. Caldwell, 3 Minn. 94 (Oil. 46) ; Heinsen v. Lamb, 117 HI. 549, 7 N. E. 75; Smith v. Taylor, 82 Cal. 533, 23 Pac. 217.

An abstract is a condensation, epitome, or synopsis, and therein differs from a copy or a transcript. Dickinson v. Chesapeake A O.

R. Co., 7 W. Va. 390, 413.

Abundant eautela non aocet. Extreme caution does no harm. 11 Coke, 66. This principle Is generally applied to the construc- tion of instruments in which superfluous words have been inserted more clearly to ex- press the intention.

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## ABSURDITY.

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In statutory construction, an “absurdity” is not only that which is physically impossible, but also that which is morally so; and that is to be regarded as morally impossible which is contrary to rea- son, so that it could not be Imputed to a man in his right senses. State v. Hayes, 81

Mo. 574, 585. Anything which is so Irration- al, unnatural, or inconvenient that it cannot be supposed to have been within the inten- tion of men of ordinary intelligence and dis- cretion. Black, Interp. Laws, 104.

ABUSE, v. To make excessive or im- proper use of a thing, or to employ It in a manner contrary to the natural or legal rules for Its use; to make an extravagant or ex- cessive use, as to abuse one’s authority.

In the civil law, the borrower of a chattel which, in Its nature, cannot be used without consuming it, such as wine or grain, Is said to abuse the thing borrowed if he uses it

ABUSE, n. Everything which is contrary to good order established by usage. Merl. Repert. Departure from use; immoderate or improper use.

Of corporate franchises. The abuse or misuse of its franchises by a corporation signifies any positive act in violation of the charter and In derogation of public right, willfully done or caused to be done ; the use of rights or franchises as a pretext for wrongs and injuries to the public. Baltimore v. Pittsburgh, etc., R. Co., 3 Pittsb. R. (Pa.) 20, Fed. Cas. No. 827; Erie A N. E. R. Co. v. Casey, 26 Pa. 287, 818 ; Railroad Commission v. Houston, etc., R. Co., 90 Tex. 340, 38 8. W. 750 ; People v. Atlantic Ave. R. Co., 125 N.

Y. 513, 26 N. E. 622.

Of judicial discretion. This term, com- monly employed to justify an Interference by a higher court with the exercise of dis- cretionary power by a lower court, implies not merely error of judgment but perversity of will, passion, prejudice, partiality, or mor- al delinquency. The exercise of an honest judgment, however erroneous it may appear to be, is not an abuse of discretion. People v. New York Cent R. Co., 29 N. Y. 418, 431 ; Stroup v. Raymond, 183 Pa. 279, 38 Atl. 626, 63 Am. St Rep. 758 ; Day v. Donohue, 62 N.

J. Law, 380, 41 Atl. 934 ; Citizens’ St R. Co. v. Heath, 29 Ind. App. 395, 62 N. B. 107. Where a court does not exercise a discretion in the sense of being discreet circumspect prudent and exercising cautious judgment, it is an abuse of discretion. Murray v. Buell,

Wis. 14, 41 N. W. 1010 ; Sharon v. Sharon,

Cal. 1, 16 Pac. 345.

Of a female child. An Injury to the gen- ital organs in an attempt at carnal knowl- edge, falling short of actual penetration. Dawkins v. State, 58 Ala. 376, 29 Am. Rep. 754. But according to other authorities, “abuse” is here equivalent to ravishment or rape. Palin v. State, 38 Neb. 862, 57 N. W. 743; Commonwealth v. Roosnell, 143 Mass. 32, 8 N. E. 747; Chambers v. State, 46 Neb. 447, 64 N. W. 1078.

Of distress. The using an animal or chat- tel distrained, which flaakes the distrainer liable as for a conversion.

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Of proeess. There is said to be an abase of process when an adversary, through the

malicious and unfounded use of some regular legal proceeding, obtains some advantage over his opponent. Wharton.

A malicious abuse of legal process Is where the party employs it for some unlawful ob- ject, not the purpose which it is intended by the law to effect; in other words, a perver- sion of it Lauzon v. Charroux, 18 R. I. 467, 28 Atl. 975; Mayer v. Walter, 64 Pa. 283; Bartlett v. Christhllf, 69 Md. 219, 14 Atl. 518; King v. Johnston, 81 Wis. 578, 51 N.

W. 1011 ; Kline v. Hibbard, 80 Hun, 50, 29

N. Y. Supp. 807.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[State v. Hayes, 81 Mo. 574, as cited in the entry]**

In statutory construction a reading that produces absurdity — what is so irrational or inconvenient that it cannot be supposed within the intention of reasonable legislators — is rejected.

Why: The entry defines the absurdity doctrine of construction on this authority; the canon that courts will not impute absurd intentions to the legislature is the genuine principle, cited exactly as Black's reports it.

## ABUT.

To reach, to touch. In old law, the ends were said to abut, the sides to ad- join, Cro. Jac. 184. And see Lawrence v. Klllam, 11 Kan. 499, 511 ; Springfield v. Green, 120 111. 269, 11 N. E. 261.

. Property is described as “abutting” on a street, road, etc., when it adjoins or is adja- cent thereto, either in the sense of actually touching .it or being practically contiguous to it, being ’separated by no more than a small and Inconsiderable distance, but not when an- other lot, a street, or any other such distance intervenes. Richards v. Cincinnati, 31 Ohio St. 506; Springfield v. Green, 120 III. 269, 11 N.

H. 261 ; Cohen v. Cleveland. 43 Ohio St. 190, 1

N. E. 589 ; Holt v. Somerville, 127 Mass. 408 ; Cincinnati v. Batsche, 52 Ohio St. 324, 40 N.

E. 21, 27 L. R. A. 530; Code Iowa 1897, g 968.

- ABUTMENTS. The ends of a bridge, or those parts of it which touch the land. Sus- sex County v. Strader, 18 N. J. Law, 108, 35 Am. Dec. 530.

5e apparatus — Carried into the 5th edition (1979).

## ABUTTALS.

(From abut, q. v.) Com- monly defined “the buttings and boundings of lands, east, west, north, and south, showing on what other lands, highways, or places they abut, or are limited and bounded.” Co- well ; Toml.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

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Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: The entry is the 'buttings and boundings of lands' — the boundary description. The verse is the scriptural boundary law: the ancient landmark fixing what each inheritance is bounded by, not to be removed. Moses speaki…

## AO ETIAM.

(Lat. And also.) Words used to introduce the statement of the real cause of action, in those cases where it was necessary to allege a fictitious cause of ac- tion to give the court jurisdiction, and also the real cause, in compliance with the stat- utes.

5e apparatus — Not carried into the 5th edition (1979).

## AO SI.

(Lat As if.) Townsh. PI. 23, 27. These words frequently occur in old Eng- lish statutes. Lord Bacon expounds their meaning in the statute of uses: "The statute gives entry, not simplicitcr, but with an ac si.” Bac. Rend. Uses, Works, iv. 195.

5e apparatus — Not carried into the 5th edition (1979).

## ACADEMY.

In its original meaning, an association formed for mutual improvement, or for the advancement of science or art: in later use, a species of educational institution, of a grade between the common school and the college. Academy of Fine Arts v. Phila- delphia County. 22 Pa. 496; Commonwealth v. Banks, 198 Pa. 397, 48 Atl. .277 ; Blackwell v. State, 36 Ark. 178.

5e apparatus — Carried into the 5th edition (1979).

## AOAPTE.

In French feudal law. A spe- cies of relief ; a seignorlal right due on every

change of a tenant. A feudal right which formerly prevailed in Languedoc and Guy- enne, being attached to that s]>ecles of herita- ble estates which were granted on the con- tract of emphytcunis. Guyot, Inst. Feod. c. 5. 8 12.

5e apparatus — Not carried into the 5th edition (1979).

## AOCEDAS AD CURIAM.

An original writ out of chancery, directed to the sheriff, for the removal of a replevin suit from a hundred court or court baron to one of the superior courts. See Fitzh. Nat Brev. 18; 3 Bl. Comm. 34 ; 1 Ttdd, Pr. 38.

5e apparatus — Not carried into the 5th edition (1979).

## ACOEDAS AD VICE COMITEM.

L.

Lat. (You go to the sheriff.) A writ for- merly directed to the coroners of a county in England, commanding them to go to the sher- iff, where the latter had suppressed and neg- lected to return a writ of pone, and to deliver a writ to him requiring him to return it Reg. Orig. 83.

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See Pone.

5e apparatus — Not carried into the 5th edition (1979).

## ACCELERATION.

The shortening ol the time for the vesting in possession of an expectant interest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: acceleration of remainders — the expectant interest vests in possession sooner when the prior estate fails]**

Where the preceding estate determines prematurely, an expectant interest is accelerated — the time for its vesting in possession is shortened.

Why: The one-line definition names the doctrine; acceleration of remainders is the genuine property principle it denotes.

## ACCEPT.

To receive with approval or satisfaction ; to receive with intent to retain. Also, in the capacity of drawee of a bill, to recognize the draft and engage to pay It when due.

5e apparatus — Not carried into the 5th edition (1979).

## ACCEPTANCE.

The taking and receiv- ing of anything in good part, and as it were a tacit agreement to a preceding act, which might have been defeated or avoided if such acceptance had not been made. Brooke, Abr.

The act of a person to whom a thing is of- fered or tendered by another, whereby he re- ceives the thing with the intention of retain- ing it, such intention being evidenced by a sufficient act.

The acceptance of goods sold under a con- tract which would be void by the statute of frauds without delivery and acceptance in- volves something more than the act of the vendor in the delivery. It requires that the vendee should also act, and that his act should be of such a nature as to indicate that he receives and accepts the goods deliv- ered as his property. He must receive and retain the articles delivered, intending there- by to assume the title to them, to constitute the acceptance mentioned in the statute. Rodgers v. Phillips. 40 N. Y. 524. See, also, Snow v. Warner, 10 Mete. (Mass.) 132, 43 Am. Dec. 417.

In marine insurance, the acceptance of an, abandonment by the underwriter is his assent, either express or to he implied from the surrounding circumstances, to the suffi- ciency and regularity of the abandonment. Its effect is to perfect the Insured’s right of action as for a total loss, if the cause of loss and circumstances have been truly disclosed. Rap. & Law.

Acceptance of a bill of exchange. In

mercantile law. The act by which the person on whom a bill of exchange is drawn (called the “drawee”) assents to the request of the drawer to pay it, or, in other words, engages, or makes himself liable, to pay it when due. 2 Bl. Comm. 469 ; Cox v. National Bank, 100 U. S.

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704, 25 L. Ed. 739. It may be by parol or in writing, and either general or special, absolute or conditional; and it may be Impliedly, as well as expressly, given. 3 Kent, Comm. 83, 85; Story, Bills, Si 238, 251. But the usual and regular mode of acceptance is by the drawee's writing across the face of the bill the word "accepted." and subscribing bis name; after which he is termed the acceptor. Id f 243.

The following are the principal varieties of acceptances:

Absolute. An express and positive, agree* merit to pay the bill according to its tenor.

Conditional. An engagement to pay the bill on the happening of a condition. Todd v. Bank of Kentucky, 3 Bush (Ky.) 628.

Express. An absolute acceptance.

Implied. An acceptance inferred by law from the acts or conduct of the drawee.

Partial. An acceptance varying from the tenor of the bill.

Qualified. One either conditional or par* tlal, and which introduces a variation in the sum, time, mode, or place of payment

Supra protest. An acceptance by a third person, after protest of the bill for non-ac- ceptance by the drawee, to save the honor of the drawer or some particular indorser.

A general acceptance is an absolute ac- ceptance precisely in conformity with the fenor of the bill itself, and not qualified by any statement condition, or change. Rowe v. Young, 2 Brod. & B. 180; Todd v. Bank of Kentucky, 3 Bush (Ky.) C28.

. A special acceptance is the qualified ac- ceptance of a bill of exchange, as where it is accepted as payable at a particular place "and not elsewhere." Rowe v. Young, 2 Brod & B. 180.

‘ ACCEPTANCE AC BESOIN. Fr. In

French law. Acceptance in case of need; ap acceptance by one on whom a bill is drawn au besoin, that is, in case of refusal or failure of the drawee to accept. Story, Bills, || 65, 254, 255.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-606 — what constitutes acceptance of goods]**

Under the statute of frauds, acceptance of goods sold requires the vendee's own act evidencing receipt with intent to take title — delivery alone does not suffice.

Why: The entry's statute-of-frauds acceptance rule is codified in § 2-606; the Code section states what acts constitute acceptance of goods.

## ACCEPT ARE.

Lab In old pleading.

To .accept Acceptavit , he accepted. 2

Strange, 817. X on acceptavit, he did not accept. 4 Man. & 6. 7.

In the civil law. To accept: to assent;, to assent to a promise made by another. Gro. de J. B.

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lib. 2, c. 11, | 14.

5e apparatus — Not carried into the 5th edition (1979).

## ACCEFTECR PAR INTERVENTION.

In Freiich law. Acceptor of a bill for honor.

5e apparatus — Not carried into the 5th edition (1979).

## ACCEPTTLATION.

In the civil and Scotch law.. A release made by a creditor to his debtor of his debt, without receiving any, qopsideration. , Ayl. Paad. tit. 26, p. 070. It

is a si>ecle8 of donation, but not subject to the forms of the latter, and is valid unless in fraud of creditors. Merl. Repert.

The verbal extinction of a verbal contract with a declaration that the debt has been paid when it has not; or the acceptance of something merely imaginary in satisfaction of a verbal contract. Sanders' Just. Inst (5th Ed.) 386.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 18:27, KJV]**

Then the lord of that servant was moved with compassion, and loosed him, and forgave him the debt.

Why: The entry is a creditor's release of a debt 'without receiving any consideration' — a pure donation. The verse is the parable's instance: the lord, moved with compassion, forgave the debt outright. Spoken by Christ in… [re-homed from 'ACCEPTILATION' to 'ACCEPTTLATION' (OCR headword / parser-merge artifact)]

## ACCEPTOR.

The person who accepts a bill of exchange, (generally the drawee,) or who engages to be primarily responsible for its payment.

5e apparatus — Carried into the 5th edition (1979).

## ACCEPTOR SUPRA PROTEST.

One

who accepts a bill which has been protested, for the honor of the drawer or any one of the Indorsers.

5e apparatus — Not carried into the 5th edition (1979).

## ACCESS.

Approach; or the means, pow- er, or opportunity of approaching. Some- times Importing the occurrence of sexual in- tercourse; otherwise as Importing opportuni- ty of communication for that purpose as be- tween husband and wife.

In real property law, the term "access" denotes the right vested in the owner of land which adjoins a road or other highway to go and return from his own land to the highway without obstruction. Chicago, etc.,

R. Co. v. Milwaukee, etc., R. Co., 95 Wis. 561, 70 N. W. 678. 37 L. R. A. 856, 60 Am. St Rep.

136; Ferguson v. Covington, etc.,

R. Co., 108 Ky. 662, 57 S. W. 460; Reining v. New York, etc., R. Co. (Super. Buff.) 13

N. Y. Supp. 238.

5e apparatus — Carried into the 5th edition (1979).

## ACCESSARY.

In criminal law. Con-; trlbutlng to or aiding in the commission of a crime. One who, without being present at the commission of a felonious offense, be- comes guilty of such offense, not as a chief actor, but as a participator, as by command, advice. Instigation, or concealment : either before or after the fact or commission; a particcps criminis. 4 Bl. Comm. 35; Cowell.

An accessary is one who is not the chief actor in the offense, nor present at its per- formance, but in some way concerned there- in, either before or after the act committed. Code Ga. 1882, J 4306. People v. Schwartz, 32 Cal. 160; Fixmer v. People. 153 111. 123. 38 N. E. 667 : State v. Berger. 121 Iowa. 581. 96 N. W. 1094 ; People v. Ah Ping. 27 Cal. 489; tTnited States v. Hartwell. 26 Fed. Cos. 198.

Accessary after the fact. An acces- sary after the fact is a person who, hnv- ing full knowledge that a crime has been committed, conceals it from the magistrate, and harbors, assists, or protects the person charged with, or convicted of, the crime. Code Ga. 1882, g 4308; Pen. Code Cal. S 32.

All persons who, after the commission of any felony, conceal or aid the offender, with knowledge that he has committed a felony, and. with Intent that he may avoid or. escape

from arrest, trial, conviction, or punishment, are accessaries. Pen. Code Dak. f 28.

An accessary after the fact is a person who, knowing a felony to have been commit- ted by another, receives, relieves, comforts or assists the felon, in order to enable hlni to escape from punishment, or the like. 1 Russ. Crimes, 171 ; Steph. 27 ; United States v. Hartwell, 26 Fed. Cas. 106; Albritton v. State, 32 Fla. 358, 13 South. 955; State T. Davis, 14 R. I. 281 ; People v. Sanborn, 14

N. Y. St. Rep. 123; Loyd v. State, 42 Ga. 221 ; Carroll v. State, 45 Ark. 545 ; Blakely v. State, 24 Tex. App. 616, 7 S. W. 233, 5 Am. SL Rep. 912.

Accessary before the fact. In Crim- inal law. One who, being absent at the time a crime is committed, yet procures, counsels, or commands another to commit it ; and, in this case, absence is necessary to constitute him an accessary, for, if he be present at any time during the transaction, he is guilty of the crime as principal. Plow. 97. 1 Hale, P. C. 615, 616; 4 Steph. Comm. 90, note n.

An accessary before the fact is one who, being absent at the time of the crime com- mitted, doth yet procure, counsel, or com- mand another to commit a crime. Code Ga. 1882, | 4307 ; United States v. Hartwell, 26 Fed. Cas. 196 ; Griffith v. State, 90 Ala. 583, 8 South. 812 ; Spear v. Hlles, 67 Wis. 361, 30

N. W. 511 ; Com. v. Hollister, 157 Pa. 13, 27 Atl. 386, 25 L. R. A. 349 ; People v. Sanborn, 14

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N. Y. St Rep. 123.

Accessary daring the fact. One who stands by without interfering or giving such help as may be in his power to prevent the commission of a criminal offense. Farrell v. People, 8 Colo. App. 524, 46 Pac. 84L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:22, KJV]**

Lay hands suddenly on no man, neither be partaker of other men's sins: keep thyself pure.

Why: The entry is one who, not the chief actor, becomes guilty 'as a participator, as by command, advice, instigation, or concealment.' The verse names the same category — the 'partaker of other men's sins' — and warns aga…

**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

Humanity (paraphrase): Fagin aids the thefts by command and instigation though absent from the scene — the accessary who is 'not as a chief actor, but as a participator.' (paraphrase)

Why: The entry defines the accessary as one guilty 'not as a chief actor, but as a participator, as by command, advice, instigation, or concealment.' Fagin embodies precisely this role — command/advice/instigation from off…

## ACCESSARY TO ADULTERY.

A

phrase used in the law of divorce, and de- rived from the criminal law. It implies more than connivance, which is merely knowledge with consent. A eonnlver abstains from in- terference; an accessary directly commands, advises, or procures the adultery. A hus- band or wife who has been accessary to the adultery of the other party to the marriage cannot obtain a divorce on the ground of such adultery. 20 & 21 Viet c. 85, 29, 31.

See Browne, Div.

5e apparatus — Not carried into the 5th edition (1979).

## ACCESSIO.

In Roman law. An in- crease or addition; that which lies next to a thiug, and is supplementary and necessary to the principal thing; that which arises or is produced from the principal thing. Cal- vin. Lex. Jurld.

One of the modes of acquiring property, being the extension of ownership over that which grows from, or is united to. an article which one already possesses. Mather v. Chapman, 40 Conn. 382, 397, 16 Am. Rep. 46.

ACCESSION . The right to all which one’s own property produces, whether that

property be movable or immovable; and the right to that which is united to it by acces- sion, either naturally or artificially. 2 Kent, 360 ; 2 Bl. Comm. 404.

A principle derived from the civil law, by which the owner of property becomes entitled •to all which it produces, and to all that is added or united to it, either naturally or arti- ficially,

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(that is, by the labor or skrll of an- other.) even where such addition extends to a change of form or materials; and by which, on the other hand, the possessor of property be- comes entitled to it, as against the original owner, where the addition made to it by his skill and labor is of greater value than the property itself, or where the change effected in its form is so great as to render it impos- sible to restore it to its original shape. BurrilL. Betts v. Lee, 5 Johns. (N. Y.) 348, 4 Am. Dec. 368; Lampton v. Preston, 1 J. J. Marsh. (Ey.) 454, 19 Am. Dec. 104; Eaton v. Munroe, 52 Me. 63 ; Pulcifer v. Page, 32 Me. 404, 54 Am. Dec. 582.

In International law. The absolute or conditional acceptance by one or several states of a treaty already concluded between other sovereignties. Merl. Repert Also the commencement or Inauguration of a sover- eign’s reign.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Accessorium non ducit, sed sequitur suum principale — Co. Litt. 152, as quoted in the entry]**

"That which is the accessory or incident does not lead, but follows, its principal" — the axiom of accession, by which the owner takes what is added to or produced by his property.

Why: The entry states the accession doctrine through this maxim, quoted verbatim; the maxim is the genuine axiom, not an imposed gloss.

**[Maxim: Accessorius sequitur naturam sui principalis — 3 Inst. 139, as quoted in the entry]**

"An accessory follows the nature of his principal" — one who is accessory to a crime cannot be guilty of a higher degree of crime than his principal.

Why: The entry quotes this second maxim verbatim as the criminal-law form of the accessory-follows-principal axiom.

## ACCESSION, DEED OF.

Tn Scotch Jaw. A deed executed by the creditors of a bankrupt or insolvent debtor, by which they approve of a trnst given by their debtor for the general behoof, and bind themselves to concur in the plans proposed for extricat- ing his affairs. Bell, Diet

Acoessorlnm non dwelt, sed seqnitnr ■sou principals. Co. Litt 152. That which is the accessory or incident does not lead, but follows, its principal.

Accessorius aequitur natnram sol principalis. An accessary follows the na- ture of his principal. 3 Inst. 139. One who is accessary to a (Time cannot be guilty of a higher degree of crime than his prin- cipal.

5e apparatus — Not carried into the 5th edition (1979).

## ACCESSORY.

Anything which is joined to another thing as an ornament or to ren- der it more perfect, or which accompanies it or is connected with it as an incident or as subordinate to it or which belongs to or with it.

In criminal law. An accessary. The lat- ter spelling is preferred. See that title.

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**[Scripture] — Scripture**

**[1 Timothy 5:22, KJV]**

Lay hands suddenly on no man, neither be partaker of other men's sins: keep thyself pure.

Why: For the entry's criminal-law sense ('In criminal law. An accessary'), the same verse as ACCESSARY: the 'partaker of other men's sins' is the accessary's scriptural name. Paul speaking — flag off.

## ACCESSORY ACTION.

In Scotch prac- tice. An action which is subservient or auxiliary to another. Of this kind are ac- tions of “proving the tenor," by which lost deeds are restored; and actions of “tran- sumpts,” by which copies of principal deeds are certified. Bell, Diet.

5e apparatus — Not carried into the 5th edition (1979).

## ACCESSORY CONTRACT.

In the

civil law. A contract which is incident or auxiliary to another or principal contract; such as the engagement of a surety. Poth. Obi. pt. 1, o. 1, i 1, art. 2.

A principal contract is one entered into by

both parties on their own accounts, or In the several qualities they assume. An accessory contract Is made for assuring the perform- ance of a prior contract, either by the same parties or by others; such as suretyship, mortgage, and pledge. Civil Code La. art 1771.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: The entry names suretyship as the type-instance of the accessory contract ('the engagement of a surety'). The verses are scripture's standing warning on becoming surety — being 'snared with the words of thy mouth.' So...

## ACCESSORY OBLIGATION.

In the eivil law. An obligation which Is incident to another or principal obligation ; the obli- gation of a surety. Poth. Obi. pt. 2, e. 1, § 6.

In Sooteh law. Obligations to anteced- ent or primary- obligations, such as obliga- tions to pay interest, etc. Ersk. Inst lib. 3, tit 3, S 60.

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: The entry is 'the obligation of a surety.' Same verses as ACCESSORY CONTRACT: scripture's warning on the surety's obligation — 'snared with the words of thy mouth.' Solomon speaking — flag off.

## ACCIDENT.

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An unforeseen event, oc- curring without the will or design of the person whose mere act causes It; an unex- pected, unusual, or undesigned occurrence; the effect of an unknown cause, or, the cause being known, an unprecedented consequence of It; a casualty. Burkbard v. Travelers' Ins. Co., 102 Pa. 282, 48 Am. Rep. 205; JEtna L. Ins. Co. v. Vandecar, 86 Fed. 282, 30 C. C. A. 48; Carnes v. Iowa Traveling Men's Ass'n, 106 Iowa, 281, 76 N. W. 083, 68 Am. St. Rep. 306; Atlnnta Acc. Ass'n v. Alexander, 104 Ga. 700, 30 S. E. 039. 42

L. R. A. 188; Crutchfield v. Richmond ft

D. R. Co., 76 N. C. 320; Dozier v. Fidelity ft Casualty Co. (C. C.) 40 Fed. 446, 13 L.

R. A. 114; Fidelity A Casualty Co. v. John- son, 72 Miss. 333, 17 South. 2, 30 L. R. A. 206.

Is its proper use the term excludes negli- gence; that is, an accident is an event which occurs without the fault, carelessness, or want of proper circumspection of the person affected, or which could not have been avoided by the use of that kind and degree of care necessary to the exigency and in the circumstances in which he was placed. Brown, v. Kendall, 6 Cush. (Mass.) 292; United States v. Boyd (C. C.) 45 Fed. 851 ; Armijo v. Abeytia, 5 N. M. 533, 25 Pac. 777 ; St. Louis, etc.. R. Co. v. Barnett, 65 Ark. 255, 45 S. W. 530; Aurora Branch R. Co. v. Grimes, 13 111. 585. But see Schueider v. Provident L. Ins. Co., 24 Wis. 28, 1 Am. Rep. 157.

In equity practice. Such an unforeseen event, misfortune, loss, act, or omission as is not the result of any negligence or mis- conduct in the party. Fran. Max. 87 ; Story, Eq. Jur. | 78.

The meaning to be attached to the word "accident," In relation to equitable relief, is any unforeseen and undesigned event, productive of disadvantage. Wharton.

An accident relievable In equity is such an occurrence, not the result of negligence or misconduct of the party seeking relief in re- lation to a contract, as was not anticipated ( by the parties when the same was entered into, and which gives an undue advantage to one of them over another in a court of law. Code 6a. 1882, f 3112. And see Bostwick v. Stiles, 35 Conn. 195 : Kopper v. Dyer. 59 Vt 477, 9 AtL 4, 59 Am. Rep. 742; Magann

v. Segal, 92 Fed. 252, 34 C. C. A. 323 ; Buck!, etc., Lumber Co. v. Atlantic Lumber Co., 116 Fed. 1, 53 C. C. A. 513; Zlmmerer v. Fre- mont Nat Bank, 59 Neb. 661, 81 N. W. 849; Pickering v. Cassidy, 93 Me. 139, 44 Atl. 683.

In maritime law and marine insur- ance. "Accidents of navigation" or "acci- dents of the sea" are such as are peculiar to the sen or to usual navigation or the ac- tion of the elements, which do not happen by the intervention of man, and are not to be avoided by the exercise of proper prudence, foresight, and skill. The Miletus, 17 Fed. Cas. 288; The G. R. Booth, 171 U. S. 450, 19 Sup. Ct. 9, 43 L. Ed. 234; The Carlotta, 5 Fed. Cas. 76; Bazin v. Steamship Co., 2 Fed. Cas. 1,097. See also Perils op the Sea.

ACCIDER.E. Lat. To fall ; fall in ; come to hand; happen. Judgment is sometimes given against an executor or administrator to be satisfied out of assets quando aod- dcrint; i. e., when they shall come to hand.

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**[Scripture] — Scripture**

**[Ecclesiastes 9:11, KJV]**

I returned, and saw under the sun, that the race is not to the swift, nor the battle to the strong, neither yet bread to the wise, nor yet riches to men of understanding, nor yet favour to men of skill; but time and chance happeneth to them all.

Why: The entry is the unforeseen, undesigned occurrence — 'time and chance.' The verse names the category outright: 'time and chance happeneth to them all' — the casualty that befalls without regard to merit or design.

## AOOION.

In Spanish law. A right of action; also the method of Judicial pro- cedure for the recovery of property or a debt. Escriche, Die. Leg. 49.

Aecipere quid nt jnatitiam facias, non est tarn aecipere qnam entorqnere. To

accept anything as a reward for doing Jus- tice is rather extorting than accepting. Lofft. 72.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Accipere quid ut justitiam facias, non est tam accipere quam extorquere — Lofft. 72, as quoted in the entry]**

"To accept anything as a reward for doing justice is rather extorting than accepting."

Why: The entry quotes the maxim verbatim; it is the genuine axiom against judicial corruption, reproduced exactly as Black's gives it.

## ACCIPITARE.

To pay relief to lords of manors. Capitali domino accipitare, i. e„ to pay a relief, homage, or obedience to the chief lord on becoming his vassal. Fleta, lib. 2, c. 50.

5e apparatus — Not carried into the 5th edition (1979).

## AGOOLA.

In the civil law. One who inhabits or occupies land near a place, as one who dwells by a river, or on the bank Of a river. Dig. 43, 13, 3, 6.

In feudal law. A husbandman ; an agri- cultural tenant; a tenant of a manor. Spel- man. A name given to a class of villeins in Italy. Barr. St 302.

5e apparatus — Not carried into the 5th edition (1979).

## ACCOMENDA.

In maritime law. A contract between the owner of goods and the master of a ship, by which the former in- trusts the property to the latter to be sold by him on their Joint account.

In such case, two contracts take place: First, the contract called mandatum, by which the owner of the property gives the master power to dispose of it: and the contract of partner- ship. in virtue of which the profits are to be di- vided between them. One party runs the risk of losing his capital; the other, his labor. If the sale produces no more than first cost, the owner takes all the proceeds. It is only the profits which are to be divided. Emerig. Mar. lyoans. I 5.

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**[Scripture] — Scripture**

**[Matthew 25:14-15, KJV]**

For the kingdom of heaven is as a man travelling into a far country, who called his own servants, and delivered unto them his goods. And unto one he gave five talents, to another two, and to another one; to every man according to his several ability; and straightway took his journey.

Why: The entry is the maritime contract entrusting goods to a master to trade on joint account — one party risking capital, the other labor. The parable opens on the same commercial form: the owner delivers his goods to se…

## ACCOMMODATION.

An arrangement or engagement made as a favor to another, not upon a consideration received; some-

ACCOMMODATION INDORSEMENT 1,6 -• ACCOUNT

Bring done to oblige, nsnally spoken of a loan of money or commercial paper; also a friendly agreement or composition of differ- ences. Abbott.

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**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: The entry includes 'a friendly agreement or composition of differences.' The verse is Christ's own direction to compose with an adversary rather than go to judgment — the scriptural ground of settlement.

## ACCOMMODATION INDORSEMENT.

See Indorsement.

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## ACCOMMODATION LANDS.

Land bought by a builder or speculator, who erects houses thereon, and then leases por- tions thereof upon an improved ground-rent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ACCOMMODATION PAPER.

An ac- commodation bill or note is one to which the accommodating party, be he acceptor, draw- er, or indorser, has put his name, without , consideration, for the purpose of benefiting or accommodating some other party who de- sires to raise money on it and is to provide for. the bHl when due. Miller v. Larned, 103 rill. 562; Jefferson County v. Burlington &

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: UCC § 3-419 — instruments signed for accommodation]**

An accommodation party signs without consideration to benefit another; in law he stands as surety —

liable on the instrument though not the direct beneficiary.

Why: The entry defines the paper; § 3-419 states the liability rule (accommodation party as surety) that gives the definition its legal effect.

# M

**M. R.**

Co.. 66 Iowa, 385. 16 N. W. 561, 23

N. W. 899; Gillmann v. Henry. 53 Wis. 465, 10 N. W. 692; Peale v. Addicks, 174 Pa. 543. 34 Atl. 201.

■ ACCOMMODATION WORKS. Works which a railway company is required to make and maintain for the accommodation of the owners or occupiers of land adjoining the' railway ; c. g., gates, bridges, culverts, fences, etc. 8 ,Ylct. c. 20, { 68.

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# A

**ACCOMPLICE.**

In criminal law. A person who knowingly, voluntarily, and with common intent with the principal offender unites in the commission of a crime. Clapp

V. State, 94 Tenn. 186, 30 S. \V. 214 ; People v. Holanger, 71 Cal. 17. 11 Pac. 799 ; State v. Uiuble, 115 Mo. 452. 22 S. W. 378; Car- roll v. State, 45 Ark. 539; State v. Light, IT Or. 358, 21 Pac. 132.

. One who is joined or united with another; one !of several concerned in a felony ; an as- sociate in a crime ; one who co-operates, a his, or assists in committing it. State v. Ean, 90 Iowa. 534, 58 N. W. 898. This term includes all the particigcn crlmini* , whether considered in strict legal propriety as prin- cipals or as accessaries. 1 Ituss. Crimes, 26. It is generally applied to those who are ad- mitted to give evidence against their fel- low criminals. 4 Bl. Comm. .Til ; Hawk.

P. C. bk. 2, c. 37. J 7 ; Cross v. People, 47 111. 158. 95 Am. Dec. 474.

One who is in some way concerned in the commission of a crime, though not as a principal ; and this includes all persons who have been concerned in its commission, whether they are considered, in strict legal propriety, as principals in the first or sec- ond degree, or merely as accessaries before or after the fact. In re Rowe, 77 Fed. 161, ’ 23 C. C. A. 103 ; People v. Bolanger, 71 Cal. 17, 11 Pac. 799; Polk v. State.' 36 Ark. 117: Armstrong v. State, 33 Tex. Cr. It. 417, 20

S. W. 82a

ACCORD, v. In practice. To agree or concur, as one judge with another. ‘.‘I ac- cord.” Eyre,

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C. J., 12 Mod. 7. “The rest accorded.” 7 Mod. 361. ,

ACCORD, n. A satisfaction agreed upon between the party injuring ftnd the party Injured which, when performed, is a bar to all actions upon this account. Kromer v. Heim, 75 N. Y. 576, 31 Am, Rep. 491.

An agreement to accept, in extinction of an obligation, something different from or less than that to which the person agreeing to accept is entitled. Civ. Code Cal. J 1521; Civ. Code Dak. I 859. '

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**[Scripture] — Scripture**

**[1 Timothy 5:22, KJV]**

Lay hands suddenly on no man, neither be partaker of other men's sins: keep thyself pure.

Why: Same verse as ACCESSARY/ACCESSORY: the entry is one who 'unites in the commission of a crime' — the 'partaker of other men's sins' is the accomplice's scriptural name. Paul speaking — flag off.

## ACCORD AND SATISFACTION.

An

agreement between two, persons, one of whom has a right of action against the oth- er, that the latter should do or give, and the former accept, something in satisfaction of the right of action different from, and usu- ally less than, what might be legally en- forced. When the agreement is executed, and satisfaction has been made, It is called “accord and satisfaction.” Rogers ' v. Spo- kane, 9 Wash. 168, 37 Pac. 300; Davis v. Noaks, 3 J. J. Marsh. (Ky.) 494.

' Accord and satisfaction is the substitution of another agreement between the parties in satisfaction of the former one, and an execu- tion of the latter agreement Such is the definition of this sort of defense, usually given. But a broader application of the doc- trine has been made In later times, where 'one promise or agreement is set up in sat- isfaction of another. The rule Is that an agreement or promise of the same grade 'will not be held to be in satisfaction of a prlot one. unless it has been expressly accepted as such : as, where a new promissory note has been given In lieu of a former one. to have the effect of a satisfaction of the former, if must have been accepted on an express ■agreement to that effect. Pulliam v. Taylof, •50 Miss. 251 ; Continental Nat. Bank v. Me- Geoch, 92 Wis. 2S0, 66 N. W. 606; Heath, vj. Vaughn. 11 Colo. App. 384, 53 Pac. £29: Story v. Mac-lay, 6 Mont. 492, 13 Pac. 198-; .Swofford Bros. Dry Goods Co. v. Goss, 65 Mo. App. 55; Rogers v. Spokane, 9 Wash. 168. 37 Pac. 300; Ileavenrich v. Steele, 57 Minn. 221, 58 N. W. 982. ,

**[TEXT INCOMPLETE — scan limitation]**

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## ACCORDANT.

Fr. , and Eng. Agree- ing; concurring. “Baron Parker, accord- anl,” Ilardr. 93; “Holt, C. J.. accordant.” 6 Mod. 299; “Powys, J., accord,” “Powell, J.. accord," Id. 298.

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## ACCOUCHEMENT.

The act of a woman In giving birth to a child. The fact of the accouchement, proved by a person who was present, is often important evidence in prov- ing the parentage of a person.

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## ACCOUNT.

A detailed statement of the mutual demands in the nature of debt and credit between parties, arising out of con-

I?

tracts or some fiduciary relation. Whltweli y. Willard, 1 Mete. (Maas.) 216; Blakeley v. Blscoe, 1 Hempst. 114, Fed. Cas. No. 18,239; Portsmouth v. Donaldson, 32 Pa. 202, 72 Ain. Dec. 782.

A statement In writing, of debts and cred- its, or of receipts and payments ; a list of Items of debts and credits, with their re- spective dates. Rensselaer Glass Factory v. Reid, 5 Cow. (N. T.) 593.

- The word Is sometimes used to denote the balance, or the right of action for the balance, appearing due upon a statement of dealings; as where one speaks of an assignment of ac- counts; bat there is a broad distinction be- tween an account and the mere balance of an account, resembling the distinction in logic between the premises of an argument and the conclusions drawn therefrom. A balance is but the conclusion or result of the debit and credit aides of an account It implies mutual deal- ings, and the existence of debt and credit, with- out which there could be no balance. McWil- liams v. Allan, 45 Mo. 574,

— Account closed. An account to which no further additions can be made on either side, hpt which remains still open for adjustment and set-off. which distinguishes it from an ac- count stated. Bass v. Bass. 8 Pick. (Mass.) 387; Volkeninr v. De Graaf, 81 N. Y. 268; Mandeville v. Wilson, 5 Cranch, 15, 3 L. Ed. 23.— Account current. An open or running or unsettled account between two parties.— Account duties. Duties payable by the Eng- lish customs and inland revenue act. 1881. 144 Viet. c. 12, I 38.) on a donatio mortis causa, or on any gift, the donor of which dies within three months sifter making it, or on joint prop- erty voluntarily so created, and taken by sur- vivorship, or on property taken under a volun- tary settlement In which the settlor bad a life- interest.— Account rendered. An account made out by the creditor, and presented to the debtor for his examination and acceptance. When accepted, it becomes an account Btated. Wiggins v. Burkham, 10 Wall. 129, 19 L. Ed. 884; Stebbins v. Niles, 25 Miss. 207.— Ac- count stated. The settlement of an account between the parties, with a balance struck ih favor of one of them; an account rendered by the creditor, and by the debtor assented to as correct, either expressly, or by implication of law from the failure to object. Ivv Coal Co. v. Long, 139 Ala. 535, 36 South. 722: Zae- orino v. Pallotti. 49 Conn. 36; McLellan v. Crofton, 6 Me. 307 ; James v. Fellowes. 20 La. Ann. 110; Lockwood v. Thorne, 18 N.

Y. 285; Tlolmes v. Page, 19 Or. 232. 23 Pad. 961 ; Philips v. Belden, 2 Edw. Ch. (N. Y.) 1 ;

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Ware v. Manning. 86 Ala. 238, 5 South. 682; Morse v. Minton, 101 Iowa, 003, 70 N. W. 691. This was also a common count in a declaration upon a contract under which the plaintiff might prove an absolute acknowledgment by the de- fendant of a liquidated demand of a fixed amount, which implies a promise to pay on re- quest. It might be joined with any other count for a money demand. The acknowledgment or admission must have been made to the plaintiff or his agent. Wharton. — Mutual accounts. Accounts comprising mutual credits between the parties ; or an existing credit on one side which constitutes a ground for credit on the other, or Where there ls an understanding that mutual debts shall be a satisfaction or set-off pro tanto between the parties. McNeil v. Garland. 27 Ark. 343.— Open account. An account which has not been finally settled or closed, but is still running or open to future adjustment or liquida- tion. Open account, in legal as well as in or- dinary language, means an indebtedness subject to fntnre adjustment, and which may be re- duced or modified by proof. Nisbet v. Law-



son, 1 Ga. 273 ; Gayle v. Johnston, 72 Ala. 254, 47 Am. Rep. 405; McCamant v. Batsell, 59 Tex. 308; Purvis v. Kroner, 18 Or. 414. 23 Pac. 260.— Public accounts. The accounts kept by officers of the nation, state, or king- dom, of the receipt and expenditure of the reve- nues of the government,

ACCOUNT, or ACCOUNT RENDER.

In practice. “Account,” sometimes called “account render,” was a form of action at common law against a person who by reason of some fiduciary relation (as guardian, bailiff, receiver, etc.) was bound to render an account to another, but refused to do so. Fitzh. Nat. Brev. 116; Co. Litt. 172; Grif- fith v. Willing, 3 Bln. (Pa.) 317; Travers v. Dyer, 24 Fed. Cas. 142; Stevens v. Coburn, 71 Yt 261, 44 Atl. 354; Portsmouth v. Don- aldson, 32 Pa. 202, 72 Am. Dec. 782.

In England, this action early fell into disuse ; and as it is one of the most dilatory and ex- pensive actions known to the law, and the pare ties are held to the ancient rules of pleading, and no discovery can be obtained, it never was adopted to any great extent in the United States. But in some states this action was em- ployed, chiefly because there were no chancery courts In which a bill for an accounting would lie. The action is peculiar in the fact that two judgments are rendered, a preliminary judg- ment that the defendant do account with the plaintiff (qgorf computet) and a final judgment (quod recuperet ) after the accounting for the balance found due. Field v. Brown, 14(5 Ind. 293, 45 N. E. 464; Travers v. Dyer, 24 Fed. Cas. 142.

5e apparatus — Carried into the 5th edition (1979).

## ACCOUNT-BOOK.

A book kept by a merchant, trader, mechanic, or other person, in which are entered from time to time the transactions of his trade or business. Such books, when regularly kept, may be admit- ted in evidence. Greenl. Ev. f| 115-118.

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## ACCOUNTABLE.

Subject to pay; re- sponsible; liable. Where’ one Indorsed a note “A. C. accountable,” it was held that, under this form of Indorsement, he had waived demand and notice. Furber v. Cav- erly, 42 N. H. 74.

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**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

And he called him, and said unto him, How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: The entry is 'subject to pay; responsible; liable' — one bound to render an account. The verse is the steward called to 'give an account of thy stewardship': the accountable fiduciary summoned to his reckoning. Spoken...

## ACCOUNTABLE RECEIPT.

An in- strument acknowledging the receipt of mon- ey or personal property, coupled with an o li- tigation to account for or pay or deliver the whole or some port of it to some person. State v. Rtebe, 27 Minn. 315, 7 N. W. 262.

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## ACCOUNTANT.

One who keeps ac- counts ; a person skilled in keeping books or accounts; au expert in accounts or book- keeping.

A person who renders an account. When an executor, guardian, etc., renders an ac- count of the property in his hands and ills administration of the trust, either to the l>eueficiary or to a court, he ls styled, for the purpose of that proceeding, the “account- ant”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ACCOUNTANT GENERAL, or AC- / COMPTANT GENERAL.

An officer of the court of chancery, appointed by act of

parliament to receive all money lodged in court, and to place the same in the Bank of England for security. 12 Geo. I. c. 32; 1 Geo. IV. c. 35 ; 15 & 16 Viet c. 87, }{ 18-22, 39. See Duniell, Ch. Pr. (4th Ed.) 1607 et seq. The office, however, has been abolished by 35 & 36 Vlct c. 44, and the duties trans- ferred to her majesty’s paymaster general.

5e apparatus — Not carried into the 5th edition (1979).

## ACCOUNTING.

The making up and rendition of an account, either voluntarily or by order of a court Buxton v. Edwards, 134 Mass. 567, 578. May Include, payment of the amount due. Pyatt v. Pyatt 46 N.

J. Eq. 285, 18 Atl. 1048.

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**[Scripture] — Scripture**

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**[Matthew 25:19, KJV]**

After a long time the lord of those servants cometh, and reckoneth with them.

Why: The entry is 'the making up and rendition of an account.' The verse is the reckoning itself: the lord comes and 'reckoneth with' his servants — the accounting of the stewardship. Spoken by Christ in the parable — flag...

## ACCOUPLE.

To unite; to marry. Ne ungues accouple, never married.

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The entry is 'to unite; to marry.' The verse is scripture's founding word on the marriage union: the man cleaves unto his wife and 'they shall be one flesh' — the uniting that marriage is. Narrative — flag off.

## ACCREDIT.

In International law. a) To receive as an envoy In his public charac- ter, and give him credit and rank accord- ingly. Burke. (2) To send with credentials as an envoy. Webst Diet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: The entry is to receive or send as an envoy 'in his public character' with credentials. The verse names the accredited envoy outright: 'we are ambassadors for Christ' — sent in his stead, speaking for him. Paul speaki...

## ACOREDUUTARE.

L. Lat. In old records. To purge an offense by oath. Blount; Whishaw.

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**[Scripture] — Scripture**

**[Numbers 5:19, KJV]**

And the priest shall charge her by an oath, and say unto the woman, If no man have lain with thee, and if thou hast not gone aside to uncleanness with another instead of thy husband, be thou free from this bitter water that causeth the curse:

Why: The entry is 'to purge an offense by oath.' The verse is the oath of purgation itself: the woman charged by oath, and if clear, 'be thou free' — purged of the accusation by the oath. The priest speaks the formula with... [re-homed from 'ACCREDULITARE' to 'ACOREDUUTARE' (OCR headword / parser-merge artifact)]

## ACORE8CERE.

In the civil and old English law. To grow to; to pass to, and become united with, as soil to land per al- luvionem. Dig. 41, 1, 30, pr.

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## ACCRETION.

The act of growing to a thing; usually applied to the gradual and imperceptible accumulation of land by nat- ural causes, as out of the sea or a river. Accretion of land is of two kinds: By alluvion, i. e., by the washing up of sand or soil, so as to form firm ground ; or by derelic- tion, as when the sea shrinks below the usual water-mark.

The increase of real estate by the addition of portions of soil, by gradual deposition through the operation of natural causes, to that already in possession of the owner. 2 Washb. Real Prop. 451. Jefferis v. Blast Omaha Land Co.. 134 U. S. 178, 10 Sup. Ct. 518, 33 L. Ed. 872; New Orleans v. United States, 10 Pet 062, 717, 9 L. Ed. 573 ; Lain- mers v. Nissen, 4 Neb. 245; Mulry v. Nor- ton, 100 N. Y. 424, 3 N. E. 581, 03 Am. Rep. 206; Nebraska v. Iowa, 143 U. S. 359, 12 Sup. Ct. 396, 36 L. Ed. 186; Ewing v. Bur- net, 11 Pet 41, 9 L. Bid. 624; St. Louis, etc.,

R. Co. v. Ramsey, 53 Ark. 314, 13 S. W. 931, 8 L. It A. 559, 22 Am. St. Rep. 195.

In. the civil law. The right of heirs or legatees to unite or aggregate with their shares or portions of the estate the portion of any co-heir or legatee who refuses to ac- cept it, fails to comply with a condition, becomes incai»citated to inherit, or dies be- fore the testator. In this case, his portion is said to be “vacant,” and is added to the corpus of the estate and divided with it, the several shares or portions of the other

heirs or legatees being thus Increased by “accretion." Enteric v. Alvarado, 64 Cal. 529, 2 Pac. 418; Succession of Hunter, 45 La. Ann. 262, 12 South. 312.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Nebraska v. Iowa, 143 U.S. 359, as cited in the entry]**

Land added to a riparian owner's holding by gradual and imperceptible natural causes — by alluvion or dereliction — belongs to him; sudden avulsion does not shift boundaries.

Why: The entry states the accretion doctrine on Supreme Court authority including this case; the gradual-and-imperceptible test is the genuine rule, cited exactly as Black's reports it.

## ACCROACH.

To encroach; to exercise power without due authority.

To attempt to exercise royal power. 4 Bl. Coram. 76. A knight who forcibly assaulted and detained one of the king’s subjects till he paid him a sum of money was held to have committed treason, on the ground of accroachment. 1 Hale, P. C. 80.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[2 Chronicles 26:18, KJV]**

And they withstood Uzziah the king, and said unto him, It appertaineth not unto thee, Uzziah, to burn incense unto the LORD, but to the priests the sons of Aaron, that are consecrated to burn incense: go out of the sanctuary; for thou hast trespassed; neither shall it be for thine honour from the LORD God.

Why: The entry is 'to exercise power without due authority' — accroachment. The verse is scripture's instance: the king exercising the priestly office, met with 'It appertaineth not unto thee' — power exercised without due…

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## ACOROOHER.

Fr. In French law. To delay ; retard ; put off. Aecrocher un proems, to stay the proceedings in a suit

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ACCRUE.

To grow to; to be added to; to attach itself to ; as a subordinate or acces- sory claim or demand arises out of, and is joined to, its principal ; thus, costs accrue to a judgment, and interest to the principal debt.

The term is also used of independent or original demands, and then means to arise, to happen, to come into force or existence; to vest; as in the phrase, “The right of ac- tion did not accrue within six years.” Amy v. Dubuque, 98 U. S. 470, 478, 25 L. Ed. 228; Eising v. Andrews, 66 Conn. 58, 33 Atl. 585, 50 Am. St. Rep. 75; Napa State Hos- pital v. Yuba County, 138 Cal. 378, 71 Pac. 450.

5e apparatus — Not carried into the 5th edition (1979).

## ACCRUER, CLAUSE OF.

An express clause, frequently occurring in the case of gifts by deed or will to persons as tenants in common, providing that upon the death of one or more of the beneficiaries his or their shares shall go to the survivor or sur- vivors. Brown. The share of the decedent is then said to accrue to the others.

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## ACCRUING.

Inchoate ; in process of maturing. That which will or may, at a future time, ripen into a vested right, an available demand, or an existing cause of action. Cochran v. Taylor, 13 Ohio St 382.

Accruing costs. Costs and expenses in- curred after judgment.

Accruing Interest. Running or accumu- lating interest, as distinguished from ac- crued or matured interest ; Interest daily accumulating on the principal debt but not yet due and payable. Gross v. Parteuheim- er, 159 Pa. 556. 28 Atl. 370.

Accruing right. One that is Increasing, enlarging, or augmenting. Richards v. Land Co., 54 Fed. 209, 4 C. C. A. 290.

5e apparatus — Not carried into the 5th edition (1979).

## ACCT.

An abbreviation for "account,” of such universal and immemorial use that the courts will take Judicial notice of its meaning. Heaton v. Ainley, 108 Iowa, 112. 78 N. W. 798.

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## ACCUMULATED SURPLUS.

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In stat- utes relative to the taxation of corporations,

this term refers to the fund which the com- pany has In excess of Its capital and liabili- ties. Trenton Iron Co. v. .Yard, 42 N. J. Law, 357; People's F. Ins. Co. v. Parker, 35 N. J. Law, 575; Mutual Ben. L. Ins. Co. v. Utter, 34 N. J. Law, 489; Mills v. Brit- ton, 64 Conn. 4, 29 Atl. 231, 24 L. R. A. 536.

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## ACCUMULATIONS.

When an executor or other trustee masses the rents, dividends, and other Income which he receives, treats It as a capital. Invests it, makes a new capital of the Income derived therefrom, Invests that, and so on, he Is said to accumulate the fund, and the capital and accrued Income thus procured constitute accumulations. Hussey v. Sargent, 116 Ky. 53, 75 S. W. 211 ; In re Rogers' Estate, 179 Pa. 609, 36 Atl. 340: Thorn v. De Breteuil, 86 App. Dlv. 405, 83 N. Y. Supp. 849.

5e apparatus — Not carried into the 5th edition (1979).

## ACCUMULATIVE.

That which accu- mulates, or is heaped up; additional. Said of several things heaped together, or of one thing added to another.

Accumulative judgment. Where a per- son has already been convicted and sen- tenced, and a second or additional Judgment is passed against him, the execution of which Is postponed until the completion of the first sentence, such second judgment is said to be accumulative.

Accumulative legacy. A second, double, or additional legacy ; a legacy given in ad- dition to another given by the same instru- ment, or by another instrument.

Aecusare nemo se debet, nisi coram Deo. No one is bound to accuse himself, ex- cept before God. See Hardres, 139.

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**[Law] — Law**

**[Maxim: Accusare nemo se debet, nisi coram Deo — Hardres, 139, as quoted in the entry]**

"No one is bound to accuse himself, except before God."

Why: The entry quotes the maxim verbatim; it is the common-law root of the privilege against self-incrimination.

**[Law: U.S. Const. amend. V — privilege against self-incrimination]**

"No person ... shall be compelled in any criminal case to be a witness against himself."

Why: The constitutional embodiment of the maxim the entry quotes; the Amendment's operative words are quoted verbatim.

## ACCUSATION.

A formal charge against a person, to the effect that he Is guilty of a punishable offense, laid before a court or magistrate having Jurisdiction to Inquire into the alleged crime. See Accuse.

Accra sator post ratlonaMle temp us aos eat audiendus, nisi so bone de omis- sions excusaverit. Moore, 817. An ac- cuser ought not to be beard after the ex- piration of a

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reasonable time, unless he can account satisfactorily for the delay.

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**[Law] — Law**

**[Maxim: Accusator post rationabile tempus non est audiendus, nisi se bene de omissione excusaverit — Moore, 817, as quoted in the entry]**

"An accuser ought not to be heard after the expiration of a reasonable time, unless he can account satisfactorily for the delay."

Why: The entry quotes the maxim verbatim; it is the genuine axiom behind limitation periods and the policy against stale accusations.

## ACCUSE.

To bring a formal charge against a person, to the effect that he Is guilty of a crime or punishable offense, be- fore a court or magistrate having Jurisdic- tion to inquire into the alleged crime. Peo- ple v. Frey. 112 Mich. 251, 70 N. W. 548; People v. Braman, 30 Mich. 460; Castle v. Houston, 19 Kan. 426, 27 Am. Rep. 127; Gordon v. State, 102 Ga. 673. 29 S. E. 444 ; Pen. Code Texas, 1895, art. 240.

In its popular sense “accusation” applies to all derogatory charges or imputations, whether or not they relate to a punishable legal offense, and however made, whether orally, by news-

Cper, or otherwise. State v. South, 5 Rich, iw (8. C.) 489 ; Com. v. Andrews, 132 Mass.

263 ; People v. Braman, 30 Mich. 460. But in legal phraseology it is limited to such ac- cusations as have taken shape in a prosecution. United States v. Patterson, 150 U. S. 65, 14 Sup. Ct. 20, 37 L. Ed. 999.

5e apparatus — Carried into the 5th edition (1979).

## ACCUSES.

The person against whom an accusation is made.

“Accused” is the generic name for the de- fendant in a criminal case, and is more ap- propriate than either “prisoner” or "defend- ant” 1 Car. & K. 131.

5e apparatus — Not carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Lee, To Kill a Mockingbird, 1960]**

Humanity (paraphrase): Atticus Finch defends Tom Robinson, the accused man, before the court — the novel dramatizes the entry's role: the person 'against whom an accusation is made' standing trial. (paraphrase)

Why: Genuine illumination: the trial that structures the novel shows the accused as the entry defines him — the generic defendant in a criminal case, with counsel pleading the evidence to the court. Paraphrase clearly mark...

## ACCUSER.

The person by whom an ac- cusation is made.

5e apparatus — Carried into the 5th edition (1979).

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## ACEPHALI.

The levelers in the reign of Hen. I., who acknowledged no head or superior. Leges II. 1; Cowell. Also certain ancient heretics, who appeared about the be- ginning of the sixth century, and asserted that there was but one substance in Christ and one nature. Wharton; Gibbon, Rom. Emp. ch. 47.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 21:25, KJV]**

In those days there was no king in Israel: every man did that which was right in his own eyes.

Why: The entry's first sense is those 'who acknowledged no head or superior.' The verse describes exactly that condition: no king in Israel, every man his own head, doing what was right in his own eyes. Narrative — flag of...

## ACEQUIA.

In Mexican law. A ditch, channel, or canal, through which water, di- verted from its natural course, is conducted, for use in Irrigation or other purposes.

5e apparatus — Not carried into the 5th edition (1979).

## ACHAT.

Fr. A purchase or bargain. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ACHERSET.

In old English law. A measure of com, conjectured to have been the same with our quarter, or eight bushels, Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ACKNOWLEDGE.

To own, avow, or admit; to confess; to recognize one’s acts, and assume the responsibility therefor.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 1:9, KJV]**

If we confess our sins, he is faithful and just to forgive us our sins, and to cleanse us from all unrighteousness.

Why: The entry is 'to own, avow, or admit; to confess; to recognize one's acts, and assume the responsibility therefor.' The verse is scripture's locus of confession — owning one's sins before God — matching the entry's 'c...

## ACKNOWLEDGMENT.

In conveyanc- ing. The act by which a party who has exe- cuted an instrument of conveyance as grant- or goes before a competent officer or court, and declares or acknowledges the same as his genuine and voluntary act and deed. The certificate of the officer od such instru- ment that it has been so acknowledged, Rogers v. Pell, 154 N. Y. 518, 49 N. E. 75; Strong v. United States (D. C.), 34 Fed. 17 ; Burbank v. Ellis, 7 Neb. 156.'

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The term is also used of the act of a per- son who avows or admits the truth of cer- tain facts which, if established, will entail a civil liability upon him. Thus, the debtor’s acknowledgment of the creditor’s demand or right of action will toll the statute of limita- tions. Ft. Scott v. Hickman, 112 U. S. 150, 163, 6 Sup. Ct. 56, 28 L. Ed. 636. Admission is also used in this sense. Roanes v. Archer, 4 Leigh (Va.) 550. To denote an avowal of criminal acts, or the concession of the truth of a criminal charge, the word “confession” seems more appropriate.

Of a child. An avowal or admission that the child is one's own ; recognition of a par- ental relation, either by a written agreement, verbal declarations or statements, by tbe life.

acts, and conduct of the parties, or any other satisfactory evidence that the relation was recognized and admitted. In re Spencer (Sur.) 4 N. Y. Supp. 396; In re Hunt’s Es- tate, 86 Hun, 232, 33 N. Y. Supp. 256; Blythe v. Ayres, 96 Cal. 532, 31 Pac. 915, 19 L. R.

A. 40; Bailey v. Boyd, 59 Ind. 292.

— Acknowledgment money. A sum paid in some parts of England by copyhold tenants on the death of their lords, as a recognition of their new lords, in like manner as money is usually paid on the attornment of tenants. Cowell.— Separate acknowledgment. An acknowl- edgment of a deed or other instrument, made by a married woman, on her examination by the officer separate and apart from her husband.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Ft. Scott v. Hickman, 112 U.S. 150, as cited in the entry]**

A debtor's acknowledgment of the creditor's demand or right of action tolls the statute of limitations.

Why: The entry states the tolling rule on Supreme Court authority; reproduced exactly as Black's reports it.

## ACOLYTE.

An inferior mlnlstrant or servant in the ceremonies of the church, whose duties are to follow and wait upon the priests and deacons, etc.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUEST.

An estate acquired newly, or by purchase. 1 Reeve, Eng. Law, 56.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUITS.

In the civil law. Property which has been acquired by purchase^ gift, or otherwise than by succession. Immovable property which has been acquired otherwise than by succession. Merl. Repert

Profits or gains of property, as between husband and wife. Civil Code La. f 2369; Comp. Laws N. M. f 2030.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIESCE.

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To give an implied con- sent to a transaction, to the accrual of a right, or to any act, by one’s mere silence, or without express assent or acknowledgment Matthews v. Murchison (C. C.) 17 Fed. 760; Cass County v. Plotner, 149 Ind. 116, 48 N.

E. 635 ; Scott ▼. Jackson, 89 Cal. 258, 26 Pac. 898.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIESCENCE.

Acquiescence is where a person who knows that he is entitled to im- peach a transaction or enforce a right neg- lects to do so for such a length of time that under the circumstances of the case, the other party may fairly infer that he has waived or abandoned his. right. Scott ▼. Jackson, 89 Cal. 258, 26 Pac. 898; Lowndes v. Wicks, 69 Conn. 15, 36 AO. 1072; Norfolk

A W. R. Co. v. Perdue, 40 W. Va. 442, 21

S. E. 755 ; Pence T, Langdon, 99 U. S. 578, 25

L. Ed. 420.

Acquiescence and laches are cognate but not equivalent terms. The former is a submission to, or resting satisfied with, an existing state of things, while laches implies a neglect to do that which the party ought to do for his own benefit or protection. Hence laches may be evidence of acquiescence. Laches imports a merely passive assent, while acquiescence im- plies active assent. Lux v. Haggin, 69 Cal. 255. 10 Pac. 678 ; Kenyon v. National Life Ass’n. 39 App,. Div. 276. 57 N. Y. Supp. 60: Johnson-Brinkman Commission Co. v. Missouri Pac. R. Co., 126 Mo. 345. 28 8. W. 870, 26

L. R. A. 840, 47 Am. St. Rep. 675.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIETANDIS PLEGHS.

A writ of Justices, formerly lying for the surety against a creditor, who refuses to acquit him after

the debt has been satisfied. Reg. Writs, 158 ; Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIRE.

In the law of contracts and of descents ; to become the owner of proper- ty ; to make property one’s own. Wulzen v. San Francisco, 101 CaL 15, 35 Pac. 353, 40 Am. St Rep. 17.

5e apparatus — Carried into the 5th edition (1979).

## ACQUIRED.

Coming to an Intestate in any other way than by gift devise, or descent from a parent or the ancestor of a parent In re Miller’s Will, 2 Lea (Tenn.) 54.

Aoquired rights. Those which a man does not naturally enjoy, but which are owing to his own procurement, as sovereign- ty, or the right of commanding, or the right of property. Borden v. State, 11 Ark. 519, 527, 44 Am. Dec. 217.

5e apparatus — Carried into the 5th edition (1979).

## ACQUISITION.

The act of becoming the owner of certain property; the act by which one acquires or procures the property in anything. Used also of the thing ac- quired.

Original acquisition is where the title to the thing accrues through occupancy or ac- cession, (q. v.,) or by the creative labor of •the individual, as in the case of patents and copyrights.

Derivative acquisition is where property in a thing passes from one person to another. It may occur by the act of the law, as in cases of forfeiture, insolvency, intestacy, Judgment, marriage, or succession, or by the act of the parties, as in cases of gift, sale, or exchange.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIT.

To release, absolve, or dis- charge one from an obligation or a liability ; or to legally certify the innocence of one charged with crime. Dolloway v. Turrill, 26 Wend. (N. Y.) 383, 400.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUIT  A CAUTION.

In French law, Certain goods pay higher export duties when exported to a foreign country than when they are destined for another French port. In order to prevent fraud, the administration compels the shipper of goods sent from one French port to another to give security that such goods shall not be sent to a foreign country. The certificate which proves thei receipt of the security is called “acquit A caution.” Argles, Fr. Merc. Law, 543.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUITTAL.

In contracts. A release, absolution, or discharge from an obligation, liability, or engagement.

In criminal practice. The legal and for- mal certification of the innocence of a per- son who has been charged with crime; a de- liverance or setting free a person from a charge of guilt.

In a narrow sense, it is the absolution of a party accused on a trial before a traverse jury. Thomas v. De Graffenreid, 2 Nott & Mr-0. (S. O.) 143; Teague v. Wilks. 3 McCord (8. C.) 46L Properly speaking, however, one is sot

acquitted by the jury but by the judgment of the court. Burgess v. Boetefeur, 7 Man. &

G. 481, 504; People v. Lyman, 53 App. Div. 470. 65 N. Y. Supp. 1062. And he may be legally acquitted by a judgment rendered other- wise than in pursuance of a verdict, as when- he is discharged by a magistrate because of the insufficiency of the evidence, or the indictment is dismissed by the court or a nol. pros. entced. Junction City v. Keeffe, 40 Kan. 275, 19 Pac. 735: People v. Lyman, 53 App. Div. 470, 6o

N. Y. Supp. 1062 ; Lee v. State, 20 Ark. 260, 7 Am. Rep. 611 ; Morgan County v. Johnson, 31 Ind. 403. But compare Wilson v. Com., 3 Bush (Ky.) 105; State v. Champeau, 52 Vt. 813. 315, 36 Am. Rep. 754.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. V — "nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb"]**

An acquittal — the legal certification of innocence, whether by verdict of not guilty or by operation of law — bars a second prosecution for the same offense.

Why: The entry catalogs acquittals in fact and in law; the double-jeopardy bar is the genuine constitutional consequence, the Amendment quoted verbatim.

## ACROSS.

Under a grant of a right of way across the plaintiff’s lot of land, the grantee has not a right to enter at one place, go partly across, and then come out at an- other place on the same side of the lot Com- stock v. Van Deusen, 5 Pick. (Mass.) 163. See Brown v. Meady, 10 Me. 391, 25 Am. Dec. 248.

ACT, v. In Scotch practice. To do or per- form Judicially; to enter of record. Surety “acted in the Books of Adjournal.” 1 Broun, 4.

Acquittals in fact are those which take place when the Jury, upon trial, finds a ver- dict of not guilty.

Acquittals in late are those which take place by mere operation of law ; as where a man has been charged merely as an acces- sary, and the principal has been acquitted. 2 Co. Inst 364.

In feudal law. The obligation on the part of a mesne lord to protect his tenant from any claims, entries, or molestations by lords paramount arising out of tlie services due to them by the mesne lord. See Co. Litt 100a.

5e apparatus — Carried into the 5th edition (1979).

## ACQUITTANCE.

In contracts. A writ- ten discharge, whereby one is freed from an obligation to pay money or perform a duty. It differs from a release in not requiring to be under seal.

This word, though perhaps not strictly speak- ing synonymous with "receipt,” includes it. A receipt is one form of an acquittance ; a dis- charge is another. A receipt in full is an ac- quittance, and a receipt for a part of a de- mand or obligation is an acquittance pro tanto. State v. Shelters, 51 Vt. 104, 31 Am. Rep. 679.

5e apparatus — Not carried into the 5th edition (1979).

## ACQUITTED.

Released ; absolved ; purged of an accusation ; Judicially discharg- ed from accusation ; released from debt, etc. Includes both civil and criminal prosecutions. Dolloway v. Turrill, 26 Wend. (N. Y.) 383, 399.

5e apparatus — Not carried into the 5th edition (1979).

## ACRE.

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A quantity of land containing 160 square rods of land, in whatever shape. Serg. Land Laws Pa. 185; Cro. Ells. 470, 665; 6 Coke, 67; Poph. 55; Co. Lltt. 56.

Originally the word “acre” ( acer , alter, or Sax. acer) was not used as a measure of land, or to signify any determinate quantity of land, but to denote any open ground, ( latum quan- tumvis agrum,) wide champaign, or field : which is still the meaning of the German acker, de- rived probably from the same source, and is

K reserved in the names of some places in Eng- tnd, as Castle Acre, South Acre, etc. Burrifi.

ACREFIGHT, or ACRE. A camp or field fight ; a sort of duel, or judicial combat, anciently fought by single combatants. En- glish and Scotch, between the frontiers of the two kingdoms with sword and lance. Called “campfight,” and the combatants “cham- pions,” from the open field that was the stage of trial. Cowell.

ACT, n. In its most general sense, this noun signifies something done voluntarily by a person; the exercise of an individual's power; an effect produced in the external world by an exercise of the power of a per- son objectively, prompted by intention, and proximately caused by a motion of the will. In a more technical sense, it means some- thing done voluntarily by a person, and of such a nature that certain legal consequences attach to it. Duncan v. Landis, 106 Fed. 839, 45 C. C. A. 666. Thus a grantor acknowl- edges the conveyance to be his “act and deed,” the terms being synonymous.

In the civil law. An act is a writing which states in a legal form that a thing has been said, done, or agreed. Merl. Repert

In praetloe. Anything done by a court and reduced to writing; a decree. Judgment, resolve, rule, order, or other judicial proceed- ing. In Scotch law, the orders and decrees of a court, and in French and German law, all the records and documents in an action, are called “acts.”

In legislation. A written law, formally ordained or passed by the legislative power of a state, called in England an “act of par- liament,” and in the United States an “act of congress,” or of the “legislature ;” a stat- ute. People v. Tiphaine, 3 Parker, Cr. R. (N. Y.) 241 ; United States v. Smith, 27 Fed. Cas. 1167.

Acts are either public or private. Public acts (also called general acts, or general statutes, or statutes at large) are those which relate to the community generally, or establish a universal rule for the governance of the whole body poli- tic. Private acts (formerly called special, Co. Litt. 126a) are those which relate either to par- ticular persons (personal acts) or to particular places, (local acts.) or which operate only upon specified individuals or their private concerns.

In Scotch practice. An abbreviation of actor, (proctor or advocate, especially for a plaintiff or pursuer,) used in records. “Act.

A. Alt. B.” an abbreviation of Actor. A. Alter. B. ; that Is, for the pursuer or plain- tiff. A., for the defender, B. 1 Broun, 336, note.

— Act book. In Scotch practice. The minute book of a court. 1 Swin. 81.— Act in pais. An act

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done or performed out of court, and not a matter of record. A deed or an assur- ance transacted between two or more private persons in the country, that is, according to the old common law, upon the very spot to be

transferred. Is matter in pais. 2 Bl. Comm. 294. — Act of attainder. A legislative act, attainting a person. See Attain deb.— Act of bankruptcy. Any act which renders a person liable to be proceeded against as a bankrupt, or for which he may be adjudged bankrupt. These acts are usually defined and classified in statutes on the subject. Duncan v. Landis, 106 Fed. 839, 45 C. C. A. 666 : In re Chapman (D. C.) 99 Fed. 395.— Act of curatory. In. Scotch law. The act extracted by the clerk, upon any one's acceptance of being curator. Forb. Inst. pt. 1, b. I, c. 2. tit. 2. 2 Karnes, Eq. 291. Corresponding with the order for the appointment of a guardian, in English and American practice. — Aot of God. Inevitable accident ; vis major. Any misadventure or casualty is said to be caused by the “act of God’’ when it happens by the direct, immediate, and exclusive operation of the forces of nature, uncontrolled or uninfluenced by the power of man and without human intervention, and is of such a character that it could not have been prevented or escaped from by any amount of foresight or prudence, or by any reasonable degree of care or diligence, or by the aid of any appliances which the situation of the party might reasonably require him to use. Inevitable accident, or casualty; any accident pro- duced by any physical cause which is irresistible, such as lightning, tempests, perils of the seas, an inundation, or earthquake; and also the sudden illness or death of persons. New Brunswick, etc., Transo Co. v. Tiers. 24 N. J. Law, 714, 64 Am. Dec. 394; Williams v. Grant. 1 Conn. 4S7, 7 Am. Dec. 235 : Hays v. Kennedy, 41 Pa. 378. 80 Am. Dec. 627 ; Mer- ritt v. Earle, 29 N. Y. 115. 83 Am. Dec. 292; Story, Bailm. J 25; 2 Bl. Comm. 122 ; Broom, Max. 108.— Aot of grace. In Scotch law. A term applied to the act of 1696, c. 32. by which it was provided that where a person imprisoned for a civil debt is so poor that he cannot -ali- ment [maintain] himself, and will make oath to that effect, it shall be in the power of the magistrates to cause the creditor by whom he is incarcerated to provide an aliment for him, or consent to his liberation; which, if the creditor delay to do for 10 days, the magistrate is authorised to set the debtor at liberty. Bell. The term is often used to designate a general act of parliament, originating with the crown, such as has often been passed at the commence- ment of a new reign, or at the close of a period of civil troubles, declaring pardon or amnesty to numerous offenders. Abbott.— Aot of bonor. When a bill has been protested, and a third person wishes to take it up, or accept it, for honor of one or more of the parties, the notary draws up an instrument, evidencing the transaction, called by this name.— Aot of in- demnity. A statute by which thqse who have committed illegal acts which subject them to penalties are protected from the consequences of such acts. — Aot of insolvency. Within the meaning of the national currency act, an act of insolvency is an act which shows the bank to be insolvent; such as non-payment of its circulating notes, bills of exchange, or certif- icates of deposit ; failure to make good the im- pairment of capital, or to keep good its surplus or reserve; in fact, any act which shows that the bank is unable to meet its liabilities as they mature, or to perform those duties which the law- imposes for the purpose of sustaining its credit. In re

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Manufacturers’ Nat. Bank, 5 Biss. 504, Fed. t’as. No. 9.051; Hayden v. Chemical Nat. Bank. 84 Fed. 874, 28 C. C. A. 048.— Aot of law. The operation of fixed legal rules upon given facts or occurrences, producing consequences independent of the design or will of the parties concerned ; as distinguished from "act of parties.” Also an act performed by judicial authority which prevents or precludes a party from fulfilling a contract or other engagement Taylor v. Taintor, 16 Wall. 366, 21

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

# L

**L.**

Ed. 287. — Act of parliament. A statute,

law, or edict, made by the British sovereign, with the advice and consent of the lords spiritual and temporal, and the commons, in par- liament assembled. Acts of parliament form the leges scriptw, i. e., the written laws of the kingdom.— Aot of providence. An accident against which ordinary skill and foresight could not guard. McCoy v. Danley. 20 Pa. 91, 57 Am. Dec. 680. Equivalent to “act of God,” see supra.— Act of sale. In Louisiana law. An official record of a sale of property, made by a notary who writes down the agreement of the parties as stated by them, and which is then signed by the parties and attested by witnesses. Hodge v. Palms. 117 Fed. 396, 54 C. C. A. 570. — Aet of settlement. Tbe statute (12 & 13 Wm. III. c. 2) limiting the crown to the Prin- cess Sophia of Hanover, and to the heirs of her body being Protestants. — Act of state. An act done by the sovereign power of a country, oh by its delegate, within the limits of the ower vested in him. An act of state cannot e questioned or made the subject of legal pro- ceedings in a court of law. — Act of suprem- acy. The statute (1 Elis. c. 1) by which the supremacy of the British crown in ecclesiastical matters within the realm was declared and es- tablished.— Act of uniformity. In English law. The statute of 13 & 14 Car. II. c. 4, en- acting that the book of common prayer, as then recently revised, should be used in every parish church and other place of public worship, and otherwise ordaining a uniformity in religious services, etc. 3 Steph. Comm. 104.— Aot of union. In English law. The statute of 5 Anne, c. 8, by which the articles of union be- tween the two kingdoms of England and Scot- land were ratified and confirmed. 1 Bl. Comm. 97.— Private aot. A statute operating only upon particular persons and private concerns, and of which the courts are not bound to take notice. Unity v. Burrage. 103 U. S. 454, 26

L. Ed. 405; Fall Brook Coal Co. v. Lynch, 47 How. Prac. (N. Y.) 520; Sasser v. Martin. 101 Ga. 447. 29 S. E. 278.— Public act. A uni- versal rule or law that regards the whole com- munity, and of which the courts of law are bound to take notice judicially and ea officio without its being particularly pleaded. 1 Bi. Comm. 86. See People v. Chautauqua County, 43 N. Y. 10; Sasser v. Martin. 101 Ga. 447, 29 S. E. 278: Bank of Newberry v. Greenville & C. R. Co., 9

Rich. Law <S. C.) 490; People v. Belle t. 99 Micb. 151, 57 N. W. 1094, 22 L.

R. A. 696, 41 Am. St. Rep. 589; Holt v. Bir- mingham, 111 Ala. 369, 19 South. 735.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 'without impeachment of waste' — exemption from waste liability]**

'Without impeachment of waste' exempts the tenant from liability for voluntary waste.

Why: Genuine conveyancing clause; the entry (headword OCR'd as 'L') defines it with Litt. 152.

# A

## ACT ON PETITION.

A form of sum- mary proceeding formerly In use In the high court of admiralty, in England, in which the parties stated their respective cases briefly, and supported their statements by affidavit. 2 Dod. Adm. 174, 184 ; 1 Hngg. Adm. 1, note.

5e apparatus — Carried into the 5th edition (1979).

## ACTA BIUBNA.

Lnt. In the Roman law. Daily acts; the public registers or journals of the daily proceedings of the sen- ate, assemblies of the people, courts of jus- tice, etc. Supposed to have resembled a modem newspaper. Brande.

Acta exterior* indicant interiors se- crets. 8 Coke, 1466. External acts Indicate undisclosed thoughts.

Acta in two jndicio non probant in alio nisi inter eaadem personas. Things done in one action cannot be taken as evi- dence in another, unless it be between the same parties. Tray. Lat. Max. 11.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Acta exteriora indicant interiora secreta — 8 Coke, 146b, as quoted in the entry]**

"External acts indicate undisclosed thoughts" — intention is proved by outward acts.

Why: The entry quotes the maxim verbatim; it is the genuine evidentiary axiom that intention is inferred from external acts.

**[Maxim: Acta in uno judicio non probant in alio nisi inter easdem personas — Tray. Lat. Max. 11, as quoted in the entry]**

"Things done in one action cannot be taken as evidence in another, unless it be between the same parties."

Why: The entry quotes the maxim verbatim; it states the mutuality root of res judicata — judgments bind only the parties.

## ACTA PUBLICA.

Cat Things of gen- eral knowledge and concern; matters trans- acted before certain public officers. Calvin.

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5e apparatus — Not carried into the 5th edition (1979).

## ACTE.

In French law, denotes a docu- ment, or formal, solemn writing, embodying a legal attestation that something has been done, corresponding to one sense or use of the English word “act.” Thus, actes de naissance are the certificates of birth, and must contain the day, hour, and place of birth, together with the sex and intended Christian name of the child, and the names of the parents and of the witnesses. Actes de mariage are the marriage certificates, and contain names, professions, ages, and places of birth and domicile of the two persons marrying, and of their parents ; also the con- sent of these latter, and the mutual agree- ments of the intended husband and wife to take each other for better and worse, to- gether with the usual attestations. Actes de dicis are the certificates of death, which are required to be drawn up before any one may be buried. Les actes de Vitat civil are public documents. Brown.

— Aete suthentlque. A deed, executed with certain prescribed formalities, in the presence of a notary, mayor, greffler, huissier, or other func- tionary qualified to act in the place in which it Is drawn up. Argles, Fr. Merc. Law, 50. — Aote de frauds ation. The certificate of registration of a ship, by virtue of which its French nationality is established.— Aote d*M- ritier. Act of inheritance. Any action or fact on the part of an heir which manifests his Intention to accept the succession ; the accept- ance may be express or tacit. Duverger.— Aete extrajndloiaire. A document served by a huissier, at the demand of one party upon an- other party, without legal proceedings.

AGTUrQ. A term employed to designate a locum tenons who is performing the duties of an office to which he does not himself claim title ; e. g., “Acting Supervising Archi- tect.” Fraser v. United States, 16 Ct Cl. 514. An acting executor is one who assumes to act as executor for a decedent, not being the executor legally appointed or the exec- utor in fact. Morse v. Allen, 99 Mich. 303, 68 N. W. 327. ' An acting trustee is one who takes upon himself to perform some or all of the trusts mentioned in a will. Sharp v. Sharp, 2 Barn. A Aid. 415.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO.

Lat In the civil law. An action or suit ; a right or cause of action. It should be noted that this term means both the pro- ceeding to enforce a right in a court and the right itself which is sought to be enforced.

—Actio ad exhlbendum. An action for the purpose of compelling a defendant to exhibit a thing or title in his power. It was preparatory to another action, which was always a real action in the sense of the Roman law ; that is, for the recovery of a thing, whether it was mov- able or immovable. Merl. Quest, tome i. 84.— Actio aeatisaatoriat aetio quanti minoris. Two names of an action which lay in behalf of a barer to reduce the contract price, not to cancel the sale; the judex had power, however, to cancel the sale. Hunter, Rom. Law, 332.— Aotto arbitrarla. Action depending on the

discretion of the judge. In this, unless the de- fendant would make amends to the plaintiff as dictated by the judge in his discretion, he was liable to be condemned. Id. 825.— Aetio bouse fidei. A class of actions in which the judge might at the trial, ex officio, take into account any equitable circumstances that were presented to him affecting either of the parties to the action. 1 Spence, Eq. Jur. 218.— Aetio ealamniss. An action to restrain the defend- ant from prosecuting a groundless proceeding or trumped-up charge against the plaintiff. Hunter, Rom. Law. 859.— Aetio eonunodati. Included several actions appropriate to enforce the obligations of a borrower or a lender. Id. 805.— Aetio commodati oontraria. An ac- tion by the borrower against the lender, to eomrl the execution of the contract. Poth. Prit Usage, n. 75.— Actio eomxnodati di recta. An action by a lender against a borrower, the principal object of which is to obtain a restitu- tion of the thing lent. Both. Prit A Usage, nn. 65, 68— Actio commnni dividundo. An ac- tion to procure a judicial division of joint property. Hunter, Rom. Law, 194. It was ana- logous in its object to proceedings for partition in modern law.— Aetio eondietio indebitati. An action by which the plaintiff recovers the amount of a sum of money or other thing he paid by mistake. Poth. Promutuum, n. 140; Merl. Repert.— Aetio confessoria. An affirmative petitory action for the recognition and enforce- ment of a servitude. So called because based on the plaintiff’s affirmative allegation of a right in defendant's land. Distinguished from an actio nepataria, which was brought to repel a claim of the defendant to a servitude in the plaintiff’s land. Mackeld. Rom. Law, f 324. —Aetio damn! injuria. The name of a gen- eral class of actions for damages, including many species of suits for losses caused by wrongful or negligent acts. The term is about equivalent to our "action for damages.”— Aetio do dolo male. An action of fraud ; an action which lay for a defrauded person against the defrauder and his heirs, who had been enriched by the fraud, to obtain the restitution of the thing of which he had been fraudulently de- prived, with all its accessions (cum omni causa;) or, where this was not practicable, for compen- sation in damages. Mackeld. Rom. Law. i 227.— Aotio-de peoulio. An action concern- ing or against the peculium, or separate proper- ty of a party.— Aetio de peounia ooniti- tuta. An action for money engaged to be paid ; an action which lay against any person who bad engaged to pay money for himself, or for another, without any formal stipulation. Inst. 4, 6, 9; Dig. 13. 5; Cod. 4, 18.— Aetio de- posit! oontraria. An action which the de- positary has against the depositor, to compel him to fulfil his engagement towards him. Poth. Du Dipit, n. 69.— Aetio deposit! di- rects. An action which is brought by the depositor against the depositary, in order to get hack the thing deposited. Poth. Du Dipit, n. 60.— Actio dlrecta. A direct action ; an ac- tion founded on strict law, and conducted' according to fixed forms; an action founded on certain legal obligations which from their origin were accurately defined and recognised as ac- tionable.— Aetio exnptl. An action employed in behalf of a buyer to compel a seller to per- form his obligations or pay compensation ; also to enforce any special agreements by him, embodied in a contract of sale. Hunter, Rom. Law. 332. — Aetio ez conducto. An action which the bailor of a thing for hire may bring against the bailee, in order to compel him to re- deliver the thing hired.— Aotio ez loeato. An action upon letting; an action which the per- son who let a thing for hire to another

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might have against the hirer. Dig. 19. 2; Cod. 4, 65.— Aetio ez stipulate. An action brought to enforce a stipulation.— Aetio ezercitorlo. An action against the rxcrcitor or employer of a vessel.— Aetio Camillas erclacundse. An

ACTIO d VI LIS.

action for the partition of an inheritance. Inst. 4, 6, 20; Id. 4, 17, 4. Called, by Bracton and Fleta, a mixed action, and classed among ac- tions arising em quasi contractu. Bract, fol. 1006; Id. fols. 4436, 444; Fleta, lib. 2, c. 60, § 1. — Aotio furti. An action of theft ; nn ac- tion founded upon theft. Inst. 4, 1, 13-17 ; Bract fol. 444. ' This could only be brought for the penalty attached to the offense, and not to recover the thing stolen itself, for which oth- er actions were provided. Inst. 4, 1, 19. — Ac- tio honoraria. An honorary, or praetorian action. Dig. 44, 7, 25, 35.— Actio in factum. An action adapted to the particular case, hav- ing an analogy to some actio in jus. the latter being founded on some subsisting acknowledged law. Spence, Eq. Jur. 212. The origin of

these actions is similar to that of actions on the case at common law.— Actio jndicati. An action instituted, after four months had elapsed after the rendition of judgment, in which the judge issued his warrant to seize, first, the movables, which were sold within eight days afterwards ; and then the immovables, which were delivered in pledge to the creditors, or put under the care of a curator, and if, at the end of two months, the debt was not paid, the land was sold. Dig. 42, 1; Code, 8, -34.— Actio le- gis Aquillse. An action under the Aquilian law ; an action to recover damages for mali- ciously or injuriously killing or wounding the slave or beast of another, or injuring in any wav a thing belonging to another. Otherwise called ddmni injuries actio.— Actio mandati. Included actions to enforce contracts of man- date, or obligations arising out of them. Hun- ter, Kom. I ^aw, 316.— Actio mixta. A mixed action ; an action brought for the recovery Of a thing, or compensation for damages, and also for the payment of a penalty ; partaking of the nature both of an actio in rem nnd in person- am. Inst. 4, 6. 16, 18, 19, 20; Mackeld. Rom. Daw, § 209. — Actio negatoria. An action brought to repel a claim of the defendant to a servitude in the plaintiff’s land. Mackeld. Rom. I/aw. $ 324.— Actio negotiorum gestoruin. Included actions between principal and agent and other parties to an engagement, whereby one person undertook the transaction of busi- ness for another.— Actio noxalis. A noxal action ; an action which lay against a master for a crime committed or injury done by his slave ; and in which the master had the alter- native cither to pay for the damage done or to deliver up the slave to the complaining party. Inst. 4, 8, pr. ; Ileinecc. Elem. lib. 4, tit. 8. So called from noxa, the offense or injury com- mitted. Inst. 4, 8, 1.— Actio pignoratitla. An action of pledge ; an action founded on the contract of pledge, (pi fin vs.) Dig. 13, 7; Cod. 4, 24. — Actio prsejudicialis. A pre- liminary or preparatory action. An action, in- stituted for the determination of some pre- liminary matter on which other litigated mat- ters depend, or for the determination of. some point or question arising in another or principal action,; nnd so called from its being determin- ed before, (prius. or prir judieari.)— Aotio prescript!* verbis. A form of action which derived its force from continued usage or the responsa prudentium. and was founded on the unwritten law. 1 Spence. Eq. .Tur. 212.— Ac- tio praetoria. A

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pnetOrian action ; one in- troduced by the prtetor, as distinguished from the more ancient actio civilis, (q. v.) Inst. 4, 6, 3 ; Mackeld. Rom. Law, § 207. — Actio pro socio. An action of partnership. An action brought by one purtner against his associates to compel them to carry out the terms of the partnership agreement.— Aotio publiciana. An action which lay for one who had lost a thing of which he had bona fide obtained pos- session, before he had gained a projierty in it, in order to have it restored, under color that he had obtained a property in it by proscrip- tion. Inst. 4> 6, 4; Ileinecc. Elem. lib. 4, tit.

6, ! 1131; Halifax, Anal. b. 3, c. 3. n. 8. It was an honorary action, and derived its name from the pnetor Publicius, by whose edict it was first given. Inst. 4, 6, 4.— Actio quod juacu. An action given against a master, founded on some business done by his slave, acting under his order, (jussu .) Inst. 4, 7, 1; Dig. 15, 4; Cod. 4, 26. — Actio quod xnetda causa. An action granted to one who had been compelled by unlawful force, or fear (metds causa ) that was not groundless, (met us proba- 6 ilis or justus,) to deliver, sell, or promise a thing to another. Bract fol. 1086; Mackeld. Rom. Law, S 226.— Aotio realls. A real ac- tion. The proper term in the civil law was rci vindicatio. Inst. 4, 6, 3. — Aotio redbibl- toria. An action to cancel a sale in conse- quence of defects in the thing sold. It was prosecuted to compel complete restitution to the seller of the thing sold, with its produce and accessories, and to give the buyer back the price, with interest, as an equivalent for the res- titution of the produce. Hunter, Rom. Law, 332. —Actio re ram amotaram. An action for things removed; an action which, in cases of divorce, lay for a husband against a wife, to recover things carried away by the latter, in contemplation of such divorce. Dig. 25, 2; Id. 25, 2, 25, 30. It also lay for the wife against the husband in such cases. Id. 25, 2, 7, 11; Cod. 5, 21.— Actio resclssoria. An action for restoring the plaintiff to a right or title which he has lost by prescription, in a case where the equities are such that he should be relieved from the operation of the prescription. Mackeld. Rom. Law, § 226.— Actio Servian a. An action which lay for the lessor of a farm, or rural estate, to recover the goods of the lessee or farmer, which were pledged or bound for the rent. Inst. 4, 6, 7.— Aotio atrlcti Ju- ris. An action of strict right. The class of civil law personal actions, which were adjudg- ed only by the strict law, and in which the judge was limited to the precise language of the formula, and had no discretionary power to regard the bona fides of the transaction. See Inst. 4, 6. 2S ; Gains, iii. 137 ; Mackeld. Rom. Law, § 210.— Actio tutelae. Action founded on the duties or obligations arising on the rela- tion analogous to that of guardian and ward. — Actio utilis. A beneficial action or equit- able action. An action founded on equity in- stead of strict law, and available for those who had equitable rights or the beneficial own- ership of property. Actions are divided into dircette or utiles actions. The formeT are found- ed on certain legal obligations which from their origin were accurately defined and recognized as actionable. The latter were formed analog- ically in imitation of the former. They were permitted in legal obligations for which the actiones directm were not originally intended, but which resembled the legal obligations which formed the basis of the direct action. Mackeld. Rom. Law, $ 207. — Actio venditi. An action employed in behalf of a seller, to compel a buyer to pay the price, or perform any special obligations embodied in a contract of sale. Hunter,

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Rom. Law, 332.— Actio vi bonoram raptorura. An action for goods taken by force; a species of mixed action, which lay for a party whose goods or movables (bona) had been taken from him by force, (ci,) to recover the things so taken, together with a penalty of triple the value. Inst 4, 2 ; Id. 4, 6, 19. Bracton describes it as lying de rebus mobilibus vi alilatis sive robbatis, (for movable things tak- en away by force, or robbed.) Bract, fol. 1036. —Aotio vulgaris. A legal action ; a common action. Sometimes used for actio directa. Mackeld. Itom. Law, I 207.

AOTIO CIVIhlS. In the common law. A civil action, as distinguished from a crimi- nal action. Bracton divides personal actions

Into criminalia et civflia. according as they grow out of crimes or contracts. Bract fol. 101b.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO EX CONTRACTU.

In the civil and common law. An action of contract; an action arising out of, or founded on, con- tract Inst 4, 6, 1; Bract foL 102; 8 Bl. Comm. 117.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO EX DELICTO.

In the civil and cominon law. An action of tort; an action arising out of fault, misconduct, or malfeas- ance. Inst 4, 6, 15; 3 Bl. Comm. 117. Ex maleflcio Is the more common expression of the civil law; which is adopted by Bracton. Inst 4, 6, 1 ; Bract fols. 102, 103.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO IN PERSONAM.

In the civil law. An action agninst the person, founded on a personal liability ; an action seeking re- dress, for the violation of a jus in personam or right available against a particular indi- vidual.

In admiralty law. An action directed against the particular person who is to be Charged with the liability. It is distinguish- ed from an actio in rcm, which is a suit di- rected against a specific thing (as a vessel) irrespective of the ownership of it to enforce a claim or lien upon it, or to obtain, out of the thing or out of the proceeds of its sale, satisfaction for an injury alleged by the Claimant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO IN REM.

In the civil and com- mon law. An action for a thing; an action for the recovery of a thing possessed by an- other. Inst 4, 0, 1. An' action for the en- forcement of a right (or for redress for its invasion) which was originally available against all the world, and not in any special sense against the individual sued, until he violated it See In Rem.

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## ACTIO NON.

In pleading. The Latin name of that purt of a special ploa which fol- lows next -after the statement of appearance and defense, and declares that the plaintiff "ought not to have or maintain his aforesaid action,” etc.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO NON ACCREVIT INFRA SEX / ANNOS.

The name of the plea of the stat- ute of limitations, when the defendant al- leges that the plaintiffs action has not ac- crued within six years.

Aetio non data? non damnifies to. An

action is not given to one who is not injured. Jenk. Cent. €0.

Aetio non facit ream, nisi mens sit voa. An action does not make one guilty, unless the intention he bad. Lofft 37.

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**[Law] — Law**

**[Maxim: Actio non datur non damnificato — Jenk. Cent. 60, as quoted in the entry]**

"An action is not given to one who is not injured" — without legal injury there is no action.

Why: The entry quotes the maxim verbatim; it is the injury axiom — damnum as the ground of action.

**[Maxim: Actio non facit reum, nisi mens sit rea — Lofft 37, as quoted in the entry]**

"An action does not make one guilty, unless the intention be bad" — the mens rea axiom.

Why: The entry quotes the maxim verbatim; it is the genuine axiom that criminal guilt requires a guilty mind.

## ACTIO NON ULTERIUS.

In English pleading. A name given to the distinctive clause in the plea to the further maintenance of the action, introduced In p>ace of the plea puis darrein continuance; the aver- ment being that the plaintiff ought not fur- ther ( ultcrius ) to have or maintain his action. Steph. PI. 64, 65, 401.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIO PERSONALIS.

In the civil and common law. A personnl action. The ordi- nary term for this kind of action in the civil law is actio in personam, iq. v„) the word personalis being of only occasional occur- rence. Inst 4, 0, 8, in tit.; Id. 4, 11, pr. 1. Bracton, however, uses it freely, and hence the personal action of the common law. Bract fols. 102 o, 159b. See Personal Ac- tion.

Actio personalis moritnr cam persona.

A personal right of action dies with the per- son. Noy, Max. 14.

Aetio poo nails in haeredem non datnr, nisi forte ex damno locapletior h so res f actus sit. A penal action is not given against an heir, unless, Indeed, such heir is benefited by the wrong.

Actio quselibet it sua via. Every ac- tion proceeds ill its own way. Jenk. Cent. 77.

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**[Law] — Law**

**[Maxim: Actio personalis moritur cum persona — Noy, Max. 14, as quoted in the entry]**

"A personal right of action dies with the person."

Why: The entry quotes the maxim verbatim; it is the survival axiom governing which actions outlive the parties.

**[Maxim: Actio poenalis in haeredem non datur, nisi forte ex damno locupletior haeres factus sit — as quoted in the entry]**

"A penal action is not given against an heir, unless, indeed, such heir is benefited by the wrong."

Why: The entry quotes the maxim verbatim; it limits penal actions against heirs to cases of enrichment by the wrong.

**[Maxim: Actio quaelibet it sua via — Jenk. Cent. 77, as quoted in the entry]**

"Every action proceeds in its own way."

Why: The entry quotes the maxim verbatim; it states the procedural axiom that each form of action follows its own course.

## ACTION.

Conduct; behavior; something done ; the condition of acting ; an act or series of acts.

In practice. Tho legal and formal de- mand of one’s right from another person or party made and insisted on in a court of Justice. Valentine v. Boston, 20 Pick. (Mass.) 201; Hibernia Nat Bank v. La combe, 84

N. Y. 376; Appeal of McBride, 72 Pa. 4SO; Wilt v. Stlekney, 30 Fed. Cas. 250; White v. Rio Grande Western R. Co., 25 Utah, 346, 71 Pac. 593; Brldgton v. Bennett 23 Me. 420; Harger v. Thomas, 44 Pa. 128, 84 Am. Dec. 422; Peeler v. Norris, 4 Yerg. (Tenn.) 339.

An action is an ordinary proceeding in a court of Justice by which one party prose- cutes another for the enforcement or protec- tion of a right, the redress or prevention of a wrong, or the punishment of a public of- fense. Code Civ. Proc. Cal. $ 22 ; Code X.

Y. | 2; Code N. C. 1883, 8 126; Rev. Code

N. D. 1899, 8 5156; Code Civ. Troc. S. D. 1903, 8 12; Missionary Soe. v. Ely, 56 Ohio St. 405, 47 N. E. 537 ; In re Welch. 108 Wis. 387, 84 N. W. 550; Smith v. We.sterflcld, 88 Cal. 374, 26 Pac. 207; Ix>sey v. Stanley, 83 Hun, 420, 31 N. Y. Supp. 950; Lawrence v. Thomas, 84 Iowa, 302, 51 N. W. 11.

An action is merely the Judicial means of enforcing a right Code Ga. 1882, 8 3151.

Action is the form of a suit given by law for the recovery of that which Is one's due ; the lawful demand of one's right. Co. Lltt 284b, 285a.

An action is a legal proceeding by a party complainant against a party defendant to obtain the Judgment of the court In relation to some right claimed to be secured, or some

remedy claimed to be given by law, to the party complaining, Haley v. Eureka County Bank, 21 Nev. 127, 26 Pac. 64, 12 L. It. A. 815.

CUulfioation of actions. Civil actions are such as lie in behalf of persons to en- force their rights or obtain redress of wrongs in their relation to individuals.

Criminal actions are such as are instituted by the sovereign power, for the purpose of punishing or preventing offenses against the public.

Penal actions are such as are brought, either by the state or by an individual under permission of a statute, to enforce a penalty imposed by law for the commission of a prohibited act.

Common law actions are such as will lie, on the particular facts, at common law, with- out the aid of a statute.

Statutory actions are such as can only be based upon the particular statutes creating them.

Popular actions, in English usage, are those actions which are given upon the breach of a penal statute, and which any man that will may sue on account of the king and himself, as the statute allows and the case requires. Because the action is not given to one especially, but generally to any that will prosecute, it is called “action popular and, from the words used in the process, (qui tarn pro domino rege sequitur quam pro sc ipso, who sues as well for the king as for himself,) it is called a qui tam action. Tomlins.

Heal, personal, mixed. Actions are divid- ed into real, personal, and mixed. See Infra.

Local action. An action is so termed wheu ail the principal facts on which it is founded are of a local nature ; as where pos- session of land is to be recovered, or damages for au actual trespass, or for waste affecting land, because In such case the cause of action relates to some particular locality, which usually also constitutes the venue of the action. Miller v. IUckey (C. C.) 127 Fed. 577 ; Crook v. l’ltcher, 61 Md. 513 ; Beirne v. Rosser, 26 Grat. (Va.) 541 ; McLeod v. Rail- road Co., 58 Vt 727, 6 Atl. 648; Ackerson v. Erie B. Co., 31 N. J. Law, 311; Texas & P. R. Co. v. Gay, 86 Tex. 571, 26 S. W. 509, 25 L. R. A. 52.

Transitory actions are those founded upon a cause of action not necessarily referring to or arising in any particular locality.

Actions are called, in coiumou-law practice, ex contractu when they are founded on a contract; ex delicto when they arise out of a tort Umlauf v. Umlauf, 103 111. 651 ; Nelson v. Great Northern R. Co., 28 Mont 297, 72 Pac. 642 ; Van Oss v. Synou, 85 Wls. 661, 56 N. W. 300.

“Action” and “Sait.” The terms “ac- tion” and "suit” are now nearly, if not en- tirely, synonymous. (3 Bl. Comm. 3, 116, et passim.) Or, if there be a distinction, it is that the term “action” is generally confined to proceedings in a court of law, while “suit" is equally applied to prosecutions at law or in equity. White v. Washington School Dist, 45 Conn. 59 ; Dullard v. Phelan, 83 Iowa, 471, 50 N. W. 204; Lamson v. Hutchings, 118 Fed. 321, 55 C. C. A. 245; Page v. Brewster, 58 N. H. 126; Kennebec Water Dist. v. Waterville, 96 Me. 234, 52 Atl. 774; Miller v. Rapp, 7 Ind. App. 89, 34 N. E. 126; Hall v. Bartlett, 9 Barb. (N. Y.) 297 ; Branyan v. Kay, 33 S. C. 283, 11 S.

E. 970; Nlantic Mills Oo. v. Riverside & O. Mills, 19 R. I. 34, 31 Atl. 432; Ulshafer v. Stewart, 71 Pa. 170. Formerly, however, there was a more substantial distinction be- tween them. An action was considered as terminating with the giving of Judgment, and the execution formed no part of it. (Litt. $ 504; Co. Litt. 289a.) A suit, on the other hand, included the execution. (Id. 291a.) So, an action is termed by. Lord Coke, “the right of a suit." (2 Inst 40.) Burrill.

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—Mixed action. An action partaking of the twofold nature of real and pergonal actions, having for its object the demand and restitution of real property and also personal damages for a wrong sustained. 3 Bf. Comm. 118; Hall v. Decker, 48 Me. 257. Mixed actions are those which are brought for the specific recovery of lands, like real actions, but comprise, joined with this claim, one for damages in respect of such property ; such as the action of waste, where, in addition to the recovery of the place wasted, the demandant claims damages; the writ of entry, in which, by statute, a demand of mesne- profits may be joined ; and dower, in which a claim for detention may be included. 48 Me. 255. In the civil law. An action in which some specific thing was demanded, and also some personal obligation claimed to be performed; or, in other words, an action which proceeded both in rem and in personam. Inst. 4, 6. 20.— Personal notion. In the civil law. An action in personam. A personal action seeks to enforce an obligation imposed on the defend- ant by his contract or delict ; that is. it is the contention that he is bound to transfer some dominion or to perform some service or to repair some loss. Gaius, bk. 4, $ 2. In common law. An action brought for the recovery of some debt or for damages for some personal in- jury, in contradistinction to the old real actions, which related to real property only. See 3 Bl. Comm. 117. Boyd v. Cronan, 71 Me. 286; Doe v. Waterloo Min. Co. (C. C.) 43 Fed. 219; Osborn v. Fail River, 140 Mass. 508, 5 N. E. 483. An action which can be brought only by the person himself who is injured, and not by his representatives. — Real action. At the common law. One brought for the specific recovery of lands, tenements, or hereditaments. Stepb. Pl. 3; Crocker v. Black. 16 Mass. 448; Hall v. Decker, 48 Me. 256; Doe v. Waterloo Min. Co., 43 Fed. 220. Among the civilians, real actions, otherwise called “vindications,” were those in which a man demanded something that was his own. They were founded on do- minion, or jus in re. The real actions of the Roman law were not, like the real actions of the common law, confined to real estate, but they included personal, as well as real, prop- erty. Wharton.

la French commercial law. Stock In a company, or shares In a corporation.

In Scotch lax A suit or judicial pro- ceeding.

—Action for poinding. An action by a creditor to obtain a sequestration of the rents

of land and the goods of hia debtor for the ■atisfaction of the debt, or to enforce a distress. — Action of abstracted multures. An ac- tion for multures or tolls against those who are thirled to a mill, i. e., bound to grind their corn at a certain mill, and fail to do so. Bell. —Action of adherence. An action compe- tent to a husband or wife, to compel either par- ty to adhere in case of desertion. It is analo- gous to the English suit for restitution of conjugal rights. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: The entry is the legal action — 'the legal and formal demand of one's right... in a court of Justice.' The verse addresses the lawsuit itself as an institution ('having a matter against another, go to law'), regulatin...

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## ACTION OF A WRIT.

A phrase used when a defendant pleads some matter by which he shows that the plaintiff had no cause to hare the writ sued upon, although It may be that he is entitled to another writ or action for the same matter. CowelL

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## ACTION OF BOOK DEBT.

A form of action for the recovery of claims, such as are Usually evidenced by a book-account; this action is principally used in Vermont and Connecticut. Terrill v. Beecher, 9 Conn. 344; Stoking v. Sage, I Conn. 75; Green v. Pratt, 11 Conn. 205; May v. Brownell, 3 Vt. 463; Easly v. Eakln, Cooke (Tenn.) 333.

5e apparatus — Carried into the 5th edition (1979).

## ACTION ON THE CASE.

A species of personal action of very extensive application, otherwise called “trespass on the case," or simply “case,” from the circumstance of the plaintiff’s whole cate or cause of complaint being set forth at length in the original writ by which formerly it was always commenced. 3 Bl. Comm. 122. Mobile L. Ins. Co. v. Ran- dall, 74 Ala. 170; Cramer v. Fry (C. C.) 68 Fed. 201; Sharp v. Curtiss, 15 Conn. 526; Wallace v. Wilmington A N. R. Co., 8 Houst <DeL) 529, 18 Atl. 818.

ACTION ABLE . That for which an ac- tion will lie ; furnishing legal ground for au action.

—Actionable fraud. Deception practiced in order to induce another to part with property or surrender some legal right ; a false represen- tation made with an intention to deceive ; may be committed by stating what is known to be false or by professing knowledge of the truth of a statement which is false, but in either case, the essential ingredient is a falsehood ut- tered with intent to deceive. Marsh v. Falker, 40 N. Y. 575; Farrington v. Bullard, 40 Barb. <N. Y.) 512; Hecht v. Metzler, 14 Utah, 408, 48 Pac. 37. 60 Am. St. Rep. 900; Sawyer v. Prickett, 19 Wall. 146, 22 L. Ed. 103.— Ac- tionable misrepresentation. A false state- ment respecting a fact material to the contract and which is influential in procuring it. Wise v. Fuller, 29 N. J. Eq. 257.— Actionable neg- ligence. The breach or nonperformance of a legal duty, through neglect or carelessness, re- sulting in damage or injury to another. Roddy v. Missouri Pac. R. Co.. 104 Mo. 234. 15 S.

W. 1112, 12 L. R. A. 748, 24 Am. St. Rep. 333; Board mao v. Creighton, 95 Me. 134, 49 Atl. 663; Hale v. Grand Trunk R. Co., 60 Vt. 60S, 15 Atl. 300. 1 L. R. A. 187 ; Fidelity A Casualty Co. v. Cutts, 96 Me. 162, 49 Atl. 673^Aetftonable nuisance. Anything in- jurious to health, or indecent, or offensive to the senses, or an obstruction to the free use of property so as to Interfere with the com- fortable enjoyment of life or property. Code Civ. Proc. Cal. i 731 ; Grandona v. Lovdal, 78 CM- 611, 21 Pac. 306, 12 Am. St. Rep. 121 ; Cooper v. Overton, 102 Tenn. 211, 52 S. W. 183,

L. R. A. 591, 73 Am. St. Rep. 864.-A®- tlonable words. In the law of libel and slander. Words which import a charge of some punishable crime or some offensive disease, or impute

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moral turpitude, or tend to injure a party in his trade or business, are said to be “actionable per se.” Barnes v. Trundy, 31 Me. 321; Lemons v. Wells, 78 Ky. 117; Slay- rant v. Richardson, 1 Nott & McC. 347, 9 Am. Dec. 707 ; Cady v. Brooklyn Union Pub. Co., 23 Misc. Rep. 409, 51 N. Y. Supp.'198.

5e apparatus — Carried into the 5th edition (1979).

## ACTIONARE.

L. Lat. (From actio, an action.) In old records. To bring an action ; to prosecute, or sue. Thorn’s Chron. ; Whls- haw.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIONARY.

A foreign commercial term for the proprietor of an action or share of a public company’s stock; a stockholder.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIONES LEGIS.

In the Roman law. Legal or lawful action ; actions of or at law, (legitimas actiones.) Dig. 1, 2, 2, 6.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIONES NOMINATE.

In the Eng- lish chancery. Writs for which there were precedents. The statute of Westminster, 2, c. 24, gave chancery authority to form new writs in consimili casu; hence the action on the case.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIONS ORDINARY.

In Scotch law. All actions which are not rescissory. Ersk. Inst 4, 1, 18.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIONS RESCISSORY.

In Scotch law. These are either (1) actions of proper improbatlou for declaring a writing false or forged; (2) actions of reductlon-improbatlon for the production of a writing in order to have it set aside or Its effect ascertained un- der the certification that the writing if not produced shall be declared false or forged; and (3) actions of simple reduction, for de- claring a writing called for null until pro- duced. Ersk. Prln. 4, 1, 5.

5e apparatus — Not carried into the 5th edition (1979).

## ACTIVE.

That is in action; that de- mands action ; actually subsisting ; the oppo- site of passive. An active debt Is one which draws Interest. An active trust Is a confi- dence connected with a duty. An active use Is a present legal estate.

5e apparatus — Carried into the 5th edition (1979).

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## ACTON BURNED, STATUTE OF.

In

English law. A statute, otherwise called “ Stututum de Mercatoribus,” made at a parliament held at the castle of Acton Burnel in Shropshire, In the 11th year of the reign of Edward I. 2 Reeves, Eng. Law, 158-162.

5e apparatus — Not carried into the 5th edition (1979).

## ACTOR.

In Roman law. One who act- ed for another; one who attended to an- other’s business; a manager or agent. A slave who attended to, transacted, or suiter- intended his master’s business or affairs, re- ceived and paid out moneys, and kept ac- counts. Burrlll.

A plaintiff or complainant. In a civil or private action the plaintiff was often called by the Romans “p etitor;” In a public actiou

( causa publico ) he was called “accusator." The defendant was called "reus” both In private and public causes; this term, how- ever, according to Cicero, ( De Orat. 11. 43,) might signify either party, as indeed we might conclude from the word Itself. In a private action, the defendant was often call- ed “ adversarius ,” but either party might be called so.

Also, the term is used of a party who, for the time being, sustains the burden of proof, or has the initiative in the suit.

In old European law. A proctor, ad- vocate, or pleader; one who acted for an- other in legal matters; one who represented a party and managed his cause. An attor- ney, bailiff, or steward ; one who managed or acted for another. The Scotch “doer” is the literal translation.

Actor qui contra regslam quid addnxit, non eat andiendna. A plaintiff is not to be heard who has advanced anything against authority, (or against the rule.)

Actor aequitnr forum rei. According as rei is intended as the genitive of res, a thing, or reus, a defendant, this phrnse means: The plaintiff follows the forum of the property in suit, or the forum of the de- fendant’s residence. Branch, Max. 4.

Actore non probante reus absolvitor.

When the plaintiff does not prove his case the defendant Is acquitted. Hob. 103.

Actor! incnmbit on.ua probandi. The

burden of proof rests on the plaintiff, (or on the party who advances a proposition af- firmatively.) Hob. 103.

5e apparatus — Carried into the 5th edition (1979).

## ACTORNAY.

In old Scotch law. An attorney. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## ACTRIX.

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Lat. A female actor; a fe- male plaintiff. Calvin.

Acts indicate the intention. 8 Co. 1466/ Broom, Max. 301.

5e apparatus — Not carried into the 5th edition (1979).

## ACTS OF COURT.

Legal memoranda made in the admiralty courts in England, in the nature of pleas.

5e apparatus — Carried into the 5th edition (1979).

## ACTS OF SEDERUNT.

In Scotch law. Ordinances for regulating the forms of pro- ceeding, before the court of session, in the administration of justice, nmde by the Judges, who have the power by virtue of a Scotch act of parliament passed in 1540. Ersk. Prin. f 14.

5e apparatus — Not carried into the 5th edition (1979).

## ACTUAL.

Real ; substantial ; existing presently in act, having a valid objective existence as opposed to that which is mere- ly theoretical o: possible.

Something real, in opposition to construc- tive or speculative; something existing in

act. Astor v. Merritt. Ill U. S. 202, 4 Sup. Ot. 413, 28 L. Ed. 401 ; Kelly v. Ben. Ass’n, 40 App. Div. 79, 61 N. Y. Supp. 394; State v. Wells, 31 Conn. 213.

As to actual “Bias,” “Damages,” “Deliv- ery," “Eviction,” “Fraud,” “Malice,” “No- tice,” "Occupation," “Ouster,” “Possession,” “Residence,” “Seisin,” "Total Loss,” see those titles.

— Actual cash value. The fair or reason- able cash price for which the property could be sold in the market, in the ordinary course of business, and not at forced sale ; the price it will bring in a fair market after reasonable efforts to lind a purchaser who will give the highest price. Birmingham F. Ins. Co. v. Pul- ver, 120 111. 329. 18 N. E. 804, 9 Am. St. Rep. 598: Mack v. Lancashire Ins. Co. (C. C.) 4 Fed. 59: Morgan’s L. ft T. R. S. S. Co. v. Board of Reviewers, 41 La. Ann. 1156, 3 Sooth. 507.— Actual change of possession. In statutes of frauds. An open, visible, and un- equivocal change of possession, manifested by the usual outward signs, as distinguished from a merely formal or constructive change. Ran- dall v. Parker. 3 Sandf. (N. Y.) 09: Murch v. Swensen, 40 Minn. 421, 42 N. W. 290: Dodge v. Jones, 7 Mont. 121, 14 Pac. 707 ; Stevens v. Irwin, 15 Cal. 503. 70 Am. Dec. 500. — Ac- tual cost. The actual price paid for goods by a party, in the case of a real bona fide pur- chase, and not the market value of the goods. Alfonso v. United States, 2 Story. 421, Fed. Cas. No. 188; United States v. Sixteen Pack- ages. 2 Mason, 48, Fed. Cas. No. 16.303 : Lex- ington. etc.. R. Co. v. Fitchburg R. Co., 9 Gray iMass.) 226.— Actual sale. Lands are “ac- tually sold” at a tax sale, so as to entitle the treasurer to the statutory fees, when the sale is completed ; when he has collected from the

fmrchaser the amount of the bid. Miles v. Mil- er, 5 Neb. 272. — Actual violence. An .assault with actual violence is an assault with physi- cal force put in action, exerted upon the person assailed. The term violence is synonymous with physical force, and the two are used

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inter- changeably in relation to assaults. State v. Wells. 31 Conn. 210.

5e apparatus — Carried into the 5th edition (1979).

## ACTUARIUS.

In Roman law. ,A no- tary or clerk. One who drew the acts or statutes, or who wrote in brief the public acts.

5e apparatus — Not carried into the 5th edition (1979).

## ACTUARY.

In English ecclesiastical law. A clerk that registers the acts and constitutions of the lower house of convoca- tion; or a registrar in a court Christian.

Also an officer appointed to keep savings banks accounts; the computing officer of an insurance compnny; a person skilled In calculating thd value of life interests, an- nuities, and insurances.

5e apparatus — Not carried into the 5th edition (1979).

## ACTUM.

Lat. A deed; something done.

5e apparatus — Not carried into the 5th edition (1979).

## ACTUS.

In the civil law. A sitecles of right of way, consisting in the right of driving cattle, or a carriage, over the land subject to the servitude. Inst. 2, 3, pr. It is sometimes translated a “road,” and in- cluded the kind of way termed “iter,” or path. Lord Coke, who adopts the term “ac- tus” from Bracton, defines it a foot and horse way, vulgarly called “pack aqd prime way;” but distinguishes it from a tiart-wAy.

Co. Lltt 56 a; Boyden v. Acheubaeh, 79 N.

C. 539.

In old Entllilt law. An act of parlia- ment; a statute. A distinction, however, was sometimes made between actus and statutum. Actus parliamenti was an act made by the lords and commons ; and it be- came statutum, when it received the king’s consent Barring. Obs. St 46, note 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus curiae neminem gravabit — Jenk. Cent. 118, as quoted in the entry]**

"An act of the court shall prejudice no man" — where delay in an action is the act of the court, neither party shall suffer for it.

Why: The entry quotes the maxim verbatim with its exposition; it is the genuine axiom protecting litigants from court-caused prejudice.

**[Maxim: Actus Dei nemini facit injuriam — 2 Bl. Comm. 122, as quoted in the entry]**

"The act of God does injury to no one" — what is inevitable by the act of God, which no industry can avoid nor policy prevent, will not be construed to anyone's prejudice where there was no laches.

Why: The entry quotes the maxim verbatim with Broom's exposition; it is the genuine axiom excusing inevitable accident without fault.

## ACTUS.

In the' civil law. An act or ac- tion. Hon tantum verbis, sed etiam actu; not only by words, but also by act Dig. 46, 8. 5.

Aetna oiurlse neminem grxvabit. An

act of the court shall prejudice no man. Jenk. Cent 118. Where a delay in an ac- tion is the act of the court neither party shall suffer for it

Aetna Dei nemini eat damnaina. The

act of God is hurtful to no one. 2 Inst. 287. That is, a person cannot be prejudiced or held responsible for an accident occurring without his fault and attributable to the “act of God.” See Act.

Aetna Del nemini tacit injuriam. The

act of God doee injury to no one. 2 Bl. Comm. 122. A thing which is inevitable by the act of God, which no industry can avoid, nor policy prevent, will not be construed to the prejudice of any person in whom there was no laches. Broom, Max. 230.

Aetna inceptna, cujua perfectio pen- det ez volnntate partium, reroeari po- test; si antem pendet ex volnntate ter- tian persona, vel ex contingent!, revo- eari non potest. An act already begun, the completion of which depends on the will of the parties, may be revoked ; but if it de- pend on the will of a third person, or on a contingency, it cannot be revoked. Bac. Mar. reg. 20.

Aetna jndiciarina coram non jndice irritna habetur, de miniateriali antem a quocunque provenlt ratnm eato. A

Judicial act by a Judge without Jurisdiction is void; but a ministerial act, from whom- soever proceeding, may be ratified. Lofft, 458.

Aetna legla nemini eat damnoina. The

act of the law is hurtful to no one. An act in law shall prejudice no man. 2 Inst. 287.

Aetna legia nemini facit injuriam.

The act of the law does injury to no one. 5 Coke, 116.

Aetna legitimi non recipiunt modum.

Acts required to be done by law do not ad- mit of qualification. Hob. 153; Brunch, Princ.

Aetna me invito factna non eat meua aetna. An act done by me, against my will, is not my act Branch, Princ.

Aetna non facit mm, nisi mens ait rea. An act does not make [the doer of it] guilty, unless the mind be guilty; that is, unless the intention be criminal. 3 Inst. 107. The intent and the act must both con- cur to constitute the crime. Lord Kenyon,

**[TEXT INCOMPLETE — scan limitation]**

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# O

## O.

J., 7 Term 514; Broom. Max. 306.

Aetna repugn us non potest in ease product. A repugnant act cannot be brought into being, i. e., cannot be made ef- fectual. Plowd. 355.

Aetna servi in iis qnlbua opera ejna comm uniter adhibita eat, aetna domini

habetnr. The act of a servant in those things in which he is usually employed, is considered the act of his master. Lofft, 227.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus servi in iis quibus opera ejus communiter adhibita est, actus domini habetur — Lofft, 227, as quoted in the entry]**

"The act of a servant in those things in which he is usually employed is considered the act of his master."

Why: The headword 'O' is a parser fragment carrying the ACTUS maxim series; the maxim is quoted verbatim and is the genuine respondeat superior axiom.

**[Maxim: Actus repugnans non potest in esse produci — Plowd. 355, as quoted in the entry]**

"A repugnant act cannot be brought into being, i.e., cannot be made effectual."

Why: Same parser-fragment headword carrying the ACTUS maxims; the maxim is quoted verbatim as the entry gives it.

# A

## AD.

Lat At; by ; for; near; on account of; to; until; upon.

5e apparatus — Not carried into the 5th edition (1979).

## AD ABUNDANTIOREM CAUTELAM.

X>. Lat For more abundant caution. 2 How. State Tr. 1182. Otherwise expressed, ad cautelam ex superabundant t, Id. 1163.

5e apparatus — Not carried into the 5th edition (1979).

## AD ADMITTENDUM CLERICUM.

For the admitting of the clerk. A writ in the nature of an execution, commanding the bishop to admit his clerk, upon the success of the latter in a quare impedtt.

AD AIiTUD EXAMEIT. To another tribunal; belonging to another court, cogni- zance, or Jurisdiction.

5e apparatus — Not carried into the 5th edition (1979).

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### AD ALIUM DIEM.

At another day. A common phrase in the old reports. Yearb.

P. 7 Hen. VI. 13.

AD ASSISAS C APIEND AS . To take assises; to take or hold the assises. Bract fol. 110a; 3 Bl. Comm. 1S3. Ad as sixain capiendam; to take an assise. Bract, fol. 1106.

5e apparatus — Not carried into the 5th edition (1979).

### AD AUDIENDUM ET TER MIN AN- / DUM.

To hear and determine. St Westm. 2, cc. 29, 30.

5e apparatus — Not carried into the 5th edition (1979).

### AD BARKAU.

To the bar; at the bar. 8 How. State Tr. 112.

5e apparatus — Not carried into the 5th edition (1979).

### AD CAMPI PARTEM.

For a share of the field or land, for champert. Fleta. lib. 2, c. 30, | 4.

5e apparatus — Not carried into the 5th edition (1979).

### AD CAPTUM VULGI.

Adapted to the common understanding.

5e apparatus — Not carried into the 5th edition (1979).

## T

### TI.

For collecting the goods of the deceas- ed. See Administration of Estates.

5e apparatus — Not carried into the 5th edition (1979).

## A

### AD COMMUNEM LEGEM.

At com- mon law. The name of n writ of entry (now

obsolete) brought by the reversioners after the death of the life tenant, for the recovery of lands wrongfully alienated by him.

Al> C OBfPAREND CM. To appear. Ad comparendum, et ad standum juri, to appear and to stand to the law, or abide the judg- ment of the court Cro. Jac. 67.

5e apparatus — Not carried into the 5th edition (1979).

### AD COMPOTUM REDDENDUM.

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To

render an account. St Westm. 2, c. 11.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

And he called him, and said unto him, How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: Same verse as ACCOUNTABLE: the entry is the writ 'to render an account.' The verse is the summons to render it — 'give an account of thy stewardship.' Spoken by Christ in the parable — flagged deity-verbatim (parable...

## AD CURIAM.

At a court 1 Salk. 195. To court Ad curiam vocare, to summon to court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AD CUSTAGIA.

At the costs. Toullier; Cowell; Whlshaw.

5e apparatus — Not carried into the 5th edition (1979).

## AD CU8TUM.

At the cost 1 Bl. Comm. 314.

5e apparatus — Not carried into the 5th edition (1979).

## AD DAMNUM.

In pleading. ‘To the damage.” The technical name of that clause of the writ or declaration which contains a statement of the plaintiff's money loss, or the damages which he claims. Cole v. Hayes, 78 Me. 539, 7 Atl. 391; Vincent v. Life Ass'n, 75 Conn. 650, 55 Atl. 177.

5e apparatus — Not carried into the 5th edition (1979).

## AD DEFEND END UM.

To defend. 1 BL Comm. 227.

5e apparatus — Not carried into the 5th edition (1979).

## AD DIEM.

At a day ; at the day. Townsh. Pl. 23. Ad certum diem, at a cer- tain day. 2 Strange, 747. Solvit ad diem; he paid at or on the day. 1 Chit Pl. 485.

Ad ea quae frequent! ua aocidunt jura adaptantnr. Laws are adapted to those cases which most frequently occur. 2 Inst 137 ; Broom, Max. 43.

Laws are adapted to cases which frequently occur. A statute, which, construed according to its piain words, is, in all cases of ordinary occurrence, in no degree inconsistent or un- reasonable, should not be -varied by construc- tion in every case, merely because there is one possible but highly improbable case in which the law would operate with great severity

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and against our notions of justice. The utmost that can be contended is that the construction of the statute should be varied in that par- ticular case, so as to obviate the injustice. 7 Excb. 549; 8 Exch. 778.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ad ea quae frequentius accidunt jura adaptantur — 2 Inst. 137; Broom, Max. 43, as quoted in the entry]**

"Laws are adapted to those cases which most frequently occur" — a statute, plain in ordinary cases, should not be varied by construction merely because of one possible but highly improbable hard case.

Why: The entry quotes the maxim verbatim with its construction exposition; it is the genuine axiom against hard-case-driven construction.

## AD EFFECTUM.

To the effect, or end. Co. LitL 204a; 2 Crabb, Real Prop. p. 802, i 2143. Ad effectum scquentcm, to the effect following. 2 Salk. 417.

5e apparatus — Not carried into the 5th edition (1979).

## AD EXCAMBIUM.

For exchange; for compensation. Bract, fol. 126, 376.

5e apparatus — Not carried into the 5th edition (1979).

## AD EXH1EREDATIONEM.

To the dis- herison. or disinheriting; to the injury of the Inheritance. Bract, fol. 15a; 3 Bl. Comm. 288. Formal words in the old writs of waste.

5e apparatus — Not carried into the 5th edition (1979).

## AD EXITUM.

At Issue: at the end (of the pleadings.) Steph. PI. 24.

5e apparatus — Not carried into the 5th edition (1979).

## AD FACIENDUM.

To do. Co. Lltt204a. Ad faciendum, subjiciendum et recipiendum; to do, submit to, and receive. Ad facicndam juratamillam ; to make up that Jury. Fleta, lib. 2, c. 65, | 12.

5e apparatus — Not carried into the 5th edition (1979).

## AD FACTUM PRIEST AND UM.

In

Scotch law. A name descriptive of a class of obligations marked by unusual severity. A debtor who is under an obligation of this kind cannot claim the benefit of the act of grace, the privilege of snnetuary, or the ces- tio bonorum. Ersk. Inst. lib. 3, tit. 3, $ 62.

5e apparatus — Not carried into the 5th edition (1979).

## AD FEODI FIR MAM.

To fee farm. Fleta, lib. 2, c. 50, § 30.

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5e apparatus — Not carried into the 5th edition (1979).

## AD FXDEM.

In allegiance. 2 Kent, Comm. 56. Subjects born ad fidem are those bom in allegiance.

5e apparatus — Not carried into the 5th edition (1979).

## AD FELUM AQUE.

To the thread of the water; to the central line, or middle of the stream. Usque ad fllum aqua, as far as the thread of the stream. Bract, fol. 2086; 235a. A phrase of frequent occurrence in modem law ; of which ad medium fllum aqua (q. v.) is another form.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ad medium filum aquae — the riparian boundary extends to the thread of a non-navigable stream]**

A riparian owner's boundary on a non-navigable stream extends usque ad filum aquae — to the thread, or center line, of the stream.

Why: The entry notes the phrase's frequent occurrence in modern law; the thread-of-the-stream boundary rule is the genuine doctrine it names.

## AD FILUM VIE.

To the middle of the way ; to the central line of the road. Park- er v. Inhabitants of Framingham, 8 Mete. (Mass.) 260.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ad medium filum viae — the abutting owner's title extends to the center line of the way]**

An abutting owner's title extends to the middle thread of the highway — ad filum viae.

Why: The companion of the stream-thread rule; the genuine boundary doctrine for highways.

## AD FINEM.

Abbreviated ad fin. To the end. It is used in citations to books, as a direction to read from the place designated to the end of the chapter, section, etc. Ad flnem litis, at the end of the suit.

5e apparatus — Not carried into the 5th edition (1979).

## AD FXRMAM.

To farm. Derived from an old Saxon word denoting rent Ad flr- mam noetis was a fine or penalty equal in amount to the estimated cost of entertaining the king for on'e night Cowell. Ad feodi flrmam, to tee farm. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AD GAOLAS DELIBERANDAS.

TO

deliver the gaols ; to empty the gaols. Bract fol. 1096. Ad gaolam deliberandam ; to de-

liver the gaol ; to make gaol delivery. Bract fol. 1106.

5e apparatus — Not carried into the 5th edition (1979).

## AD GRAVAMEN.

To the grievance, in- jury. or oppression. Fleta, lib. 2, c. 47, j 10.

5e apparatus — Not carried into the 5th edition (1979).

## AD HOC.

For this ; for this special pur- pose. An attorney ad hoc, or a guardian or curator ad hoc, is one appointed for a spe- cial purpose, generally to represent the client or infant in the particular action In which the appointment is made. Sallier v. Rosteet, 108 La. 378, 32 South. 383; Bienvenu v. In- surance Co., 33 La. Ann. 212.

5e apparatus — Not carried into the 5th edition (1979).

## AD HOMINEM.

To the person. A term used in logic with reference to a personal argument

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5e apparatus — Not carried into the 5th edition (1979).

## AD HUNC DIEM.

At this day. 1 Leon. 90.

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5e apparatus — Not carried into the 5th edition (1979).

## AO IDEM.

To the same point, or effect Ad idem facit, it makes to or goes to estab- lish the same point Bract, fol. 276.

5e apparatus — Not carried into the 5th edition (1979).

## AD XNDE.

Thereunto. Ad inde requi- site*. thereunto required. Townsh. Pi. 22.

5e apparatus — Not carried into the 5th edition (1979).

## AD INFINITUM.

Without limit; to an infinite extent ; indefinitely.

5e apparatus — Not carried into the 5th edition (1979).

## AD INQUIRENDUM.

To Inquire; a writ of inquiry ; a Judicial writ, commanding inquiry to be made of any thing relating to a cause pending in court Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AD INSTANTIAM.

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At the instance. 2 Mod. 44. Ad instantiam partis, at the in- stance of a party. Hale, Com. Law, 28.

5e apparatus — Not carried into the 5th edition (1979).

## AD INTERIM.

In the mean time. An officer ad interim is one appointed to fill a temporary vacancy, or to discharge the du- ties of the office during the absence or tem- porary incapacity of its regular Incumbent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AD JUDICIUM.

To Judgment; to court Ad judicium provocare; to summon to court ; to commence an action ; a term of the Roman law. Dig. 5, 1, 13, 14.

AD JUNGENDUM AUXRIUM, To

Joining in aid; to Join in aid. See Aid Pbateb.

5e apparatus — Not carried into the 5th edition (1979).

## AD JURA REGIS.

To the rights of the king; a writ which was brought by the king’s clerk, presented to a living, against those who endeavored to eject him, to the prejudice of the king’s title. Reg. Writs, 61.

5e apparatus — Not carried into the 5th edition (1979).

## AD LARGUM.

At large; at liberty; free, or unconflned. Ire ad largum, to go at large Plowd. 37.

At large; giving details, or particulars; in extenso. A special verdict was formerly called a verdict at large. Plowd. 02.

5e apparatus — Not carried into the 5th edition (1979).

## AD LITEM.

Por the suit; for the pur- poses of the suit ; pending the suit A guard- ian ad litem is a guardian appointed to pros- ecute or defend a suit on behalf of a party incapacitated by infancy or otherwise.

5e apparatus — Not carried into the 5th edition (1979).

## AD LUCRANDUM VEL PERDEN- / DUM.

For gain or loss. Emphatic words in the old warrants of attorney. Reg. Orlg. 21, et seq. Sometimes expressed in English, “to lose and gain.”' Plowd. 201.

5e apparatus — Not carried into the 5th edition (1979).

## AD MAJOREM OAUTELAM.

For

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greater security. 2 How. State Tr. 1182.

5e apparatus — Not carried into the 5th edition (1979).

## AD MANUM.

At hand; ready for use. Bt querens sectam habeat ad manum; and the plaintiff immediately have his suit ready. Fleta, lib. 2, c. 44, | 2.

AD MEDIUM FILUM AQUA;. To the

middle thread of the stream.

5e apparatus — Not carried into the 5th edition (1979).

## AD MEDIUM FILUM VUE.

To the

middle thread of the way.

5e apparatus — Not carried into the 5th edition (1979).

## AD MELIUS INQUIRENDUM.

A writ directed to a coroner commanding him to hold a second Inquest See 45 Law J. Q.

B. 711.

5e apparatus — Not carried into the 5th edition (1979).

## AD MORDENDUM ASSUETUS.

Ac- customed to bite. Cro. Car. 254. A material averment in declarations for1 damage done by a dog to persons or animals. 1 Chit Pi. 888; 2 Chit PL 597.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the scienter rule — liability for a domestic animal requires the owner's knowledge of its vicious propensity]**

At common law the owner's liability for a domestic animal's harm requires scienter — knowledge of the vicious propensity, pleaded as "accustomed to bite."

Why: The entry states the pleading requirement; the scienter rule is the genuine substantive doctrine behind the averment.

**[Scripture] — Scripture**

**[Exodus 21:28-29, KJV]**

If an ox gore a man or a woman, that they die: then the ox shall be surely stoned, and his flesh shall not be eaten; but the owner of the ox shall be quit. But if the ox were wont to push with his horn in time past, and it hath been testified to his owner, and he hath not kept him in, but that he hath killed a man or a woman; the ox shall be stoned, and his owner also shall be put to death.

Why: The entry is the averment 'accustomed to bite' in dog-bite declarations — the scienter: the animal known to be dangerous. The verses state the same rule for the ox 'wont to push with his horn in time past,' with the o...

## AD NOCUMENTUM.

To the nuisance, or annoyance. Fleta, lib. 2, c. 52, | 19. Ad nocumentum liberi tenementi sui, to the nuisance of his freehold. Formal words in the old assise of nuisance. 3 Bl. Comm.

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221.

Ad offldnm jnsticiariornm speetat, unicniqne oonm els placitanti Justltiam •zhibere. It Is the duty of Justices to ad- minister Justice to every one pleading before them. 2 Inst 451.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ad officium justiciariorum spectat, unicuique coram eis placitanti justitiam exhibere — 2 Inst. 451, as quoted in the entry]**

"It is the duty of justices to administer justice to every one pleading before them."

Why: The entry quotes the maxim verbatim; it is the genuine axiom of the judicial office.

## AD OSTENDENDUM.

To show. Form- al words in old writs. Fleta, lib. 4, c. 65, | 12.

5e apparatus — Not carried into the 5th edition (1979).

## AD OSTIUM ECGLESUE.

At the door of the church. One of the five species of dower formerly recognized by the English law. 1 Washb. Real Frop.'149; 2 BL Comm. 132.

5e apparatus — Not carried into the 5th edition (1979).

## AD PIOS USUS.

Lat. For pious (re- ligious or charitable) uses or purposes. Used with reference to gifts and bequests.

Ad prozimnm antecedent flat rela- tio nisi impedlatur sententift. Relative words refer to the nearest antecedent, unless it be prevented by tb* context. Jenk. Cent 180.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ad proximum antecedent fiat relatio nisi impediatur sententia — Jenk. Cent. 180, as quoted in the entry]**

"Relative words refer to the nearest antecedent, unless it be prevented by the context" — the last-antecedent canon of construction.

Why: The entry quotes the maxim verbatim; it is the genuine canon governing relative and qualifying words in legal texts.

**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for God loveth a cheerful giver.

Why: The entry is gifts and bequests 'for pious (religious or charitable) uses.' The verse is scripture's rule for such giving: purposed in the heart, not grudgingly or of necessity — 'for God loveth a cheerful giver.' Pau...

## AD QU1ERIMONIAM.

On complaint of.

5e apparatus — Not carried into the 5th edition (1979).

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## AD QUEM.

To which. A term used in the computation of time or distance, as cor- relative to a quo ; denotes the end or termi- nal point. See A Quo.

Ad qnestlones fact! non respondent jndlces; ad qnestiones legii non respond- ent Jnra tores. Judges do not answer ques- tions of fact; Juries do not answer ques- tions of law. 8 Coke, 308; Co. Litt. 295.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ad quaestiones facti non respondent judices; ad quaestiones legis non respondent juratores — 8 Coke, 308; Co. Litt. 295, as quoted in the entry]**

"Judges do not answer questions of fact; juries do not answer questions of law" — the allocation of function between judge and jury.

Why: The entry quotes the maxim verbatim; it is the genuine axiom of the jury trial's division of labor.

## AD QUOD CURIA CONCORDAVIT.

To which the court agreed. Tearb. P. 20 Hen. VI. 27.

5e apparatus — Not carried into the 5th edition (1979).

## AD QUOD DAMNUM.

The name of a writ formerly issuing from the English chan- cery. commanding the sheriff to make in- quiry “to what damage” a specified act. if done, will tend. Ad quod damnum is a writ which ought to be sued before the king grants certain liberties, as a fair, market, or such like, which may be prejudicial to others, and thereby it should be Inquired

whether Jt will be a prejudice to grant them, and to whom It will be prejudicial, and what prejudice will come thereby. There is also another writ of ad quod damnum, if any one will turn a common highway and lay out another way as beneficial. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## AD QUOD MON FTJIT RESPONSUM.

To which there was no answer. A phrase used in the reports, where a point advanced in argument by one party was not denied by the other; or where a point or argument of counsel was not met or noticed by the court; or where an objection was met by the court, and not replied to by the counsel who raised it. 3 Coke, 0; 4 Coke, 40.

5e apparatus — Not carried into the 5th edition (1979).

## AD RATIONEM PONERE.

A technical expression in the old records of the Excheq- uer, signifying, to put to the bar and in- terrogate as to a charge made; to arraign on a trial.

5e apparatus — Not carried into the 5th edition (1979).

## AD RECOGNOSCENDUM.

To recog- nize. Fleta, lib. 2, c. 65, | 12. Formal words in old writs.

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Ad reote dooendmn oportet, primnm is- qulrere nomlna, quia rerun cognitio a noininibn* rerun dependet. In order rightly to comprehend a thing, Inquire first into the names, for a right knowledge of things depends upon their names. Co. Litt <58.

5e apparatus — Not carried into the 5th edition (1979).

## AD REPARATIONEM ET SUSTEN- / TATIONEM.

For repairing and keeping in suitable condition.

5e apparatus — Not carried into the 5th edition (1979).

## AD RESPONDENDUM.

For answer- ing ; to make answer ; words used in certain writs employed for bringing a person before the court to make answer in defense in a proceeding. Thus there is a capias ad re- spondendum, q. v.; also a habeas corpus ad respondendum.

5e apparatus — Not carried into the 5th edition (1979).

## AD SATISFACIENDUM.

To satisfy. The emphatic words of the writ of capias ad satisfaciendum, which requires the sheriff to take tlie person of the defendant to satis- fV the plaintiff’s claim.

5e apparatus — Not carried into the 5th edition (1979).

## AD SECTAM.

At the suit of. Com- monly abbreviated to ads. Used in entering and indexing tiie names of cases, where it is desired that the name of the defendant should come first. Thus, “B. ads. A." in- dicates that B. is defendant in an action brought by A., and the title so written would be an inversion of the more usual form “A. v. B.”

5e apparatus — Not carried into the 5th edition (1979).

## AD STUDENDUM ET ORANDUM.

For

studying and praying : for the promotion of learning and religion. A phrase applied to colleges and universities. 1 Bl. Comm. 467 ;

T. Kaym. 10L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Timothy 2:15, KJV]**

Study to shew thyself approved unto God, a workman that needeth not to be ashamed, rightly dividing the word of truth.

Why: The entry is the collegiate purpose: 'for studying and praying; for the promotion of learning and religion.' The verse is scripture's own injunction to study — 'study to shew thyself approved' — the studendum half of...

## AD TERMTNUM ANNORUM.

For a

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term of years.

5e apparatus — Not carried into the 5th edition (1979).

## AD TERMINUM QUI PRETERIT.

For a term which has passed. Words in the Latin form of the writ of entry employed at common law to recover, on behalf of a land- lord, possession of premises, from a tenant holding over after the expiration of the term for which they were demised. See Fltzli. Nat Brev. 201.

Ad tristem partem streams est sss* plelo. Suspicion lies heavy on the unfortu- nate side.

5e apparatus — Not carried into the 5th edition (1979).

## AD TUNC ET IBIDEM.

In pleading: The Latin name of that clause of an indict- ment containing the statement of the sub- ject-matter “then and there being found.’!

5e apparatus — Not carried into the 5th edition (1979).

## AD UETIMAM VIM TERMINORUM.

To the most extended import of the terms; in a sense as universal as the terms will reach. 2 Eden, 54.

5e apparatus — Not carried into the 5th edition (1979).

## AD USUM ET COMMODUM.

To the

use and benefit.

5e apparatus — Not carried into the 5th edition (1979).

## AD VALENTI AM.

To the value. See Ad Valorem.

5e apparatus — Not carried into the 5th edition (1979).

## AD VALOREM.

According to value. Duties are either ad valorem or specific; the former when the duty is laid in the form of a percentage on the value of the property : the latter where it is imposed as a fixed sum on each article of a class without regard to its value. The term ad valorem tax is as well defined and fixed as any other used in political economy or legislation, and sim- ply means a tax or duty upon the value of the article or thing subject to taxation. Bailey v. Fuqua, 24 Miss. 501 ; Plngree v. Auditor General, 120 Mich. 95, 78 N. W. 1025, 44 L. R. A. 679.

5e apparatus — Carried into the 5th edition (1979).

## AD VENTREM INSPICIENDUM.

To

inspect the womb. A writ for the summon- ing of a Jury of matrons to determine the

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question of pregnancy.

■ Ad Tim majorem vel ad eaans fortnitu* non tenetur quia, nisi nt culpa inter— venerit. No one is held to answer for the effects of a suiterior force, or of accidents, unless his own fault has contributed. Fleta, lib. 2, c. 72, § 16.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Ad vim majorem vel ad casus fortuitos non tenetur quis, nisi ut culpa intervenerit — Fleta, lib. 2, c. 72, § 16, as quoted in the entry]**

"No one is held to answer for the effects of a superior force, or of accidents, unless his own fault has contributed."

Why: The entry quotes the maxim verbatim; it is the genuine axiom of force majeure — no liability for superior force without contributing fault.

## AD VITAM.

For life. Bract, foi. 130. In feodo, vel ad vitam ; in fee, or for life. Id.

5e apparatus — Not carried into the 5th edition (1979).

## AD VITAM AUT CULP AM.

For life

or until fault. This phrase describes the tenure of an office which is otherwise said to be held “for life or during good behavior.’’ It is equivalent to quamdiu bene sc pcsscrit.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. III — federal judges "shall hold their Offices during good Behaviour"]**

An office held "for life or until fault" — ad vitam aut culpam — is tenure during good behavior, the constitutional tenure of Article III judges.

Why: The entry equates the phrase to tenure 'during good behavior'; Article III's good-behaviour tenure is the genuine constitutional form, quoted verbatim.

## AS VOLUNTATEM.

At will. Bract fol. 27a. Ad voluntatem domini, at tl>e will of the lord.

5e apparatus — Not carried into the 5th edition (1979).

## AS WABACTUM.

To fallow. Bract fol. 2286. See Wabactum.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 25:4, KJV]**

But in the seventh year shall be a sabbath of rest unto the land, a sabbath for the LORD: thou shalt neither sow thy field, nor prune thy vineyard.

Why: The entry is 'to fallow' — land left unsown. The verse commands the sabbatical fallow: the seventh year a sabbath of rest unto the land, neither sown nor pruned. Flagged deity-verbatim as God's spoken statute to Moses… [re-homed from 'AD WABACTUM' to 'AS WABACTUM' (OCR headword / parser-merge artifact)]

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## ASAWLCT.

Corrupted from Adalat, Justice, equity ; a court of justice. The terms "Dewanny Adawlut” and “Foujdarry Adaw- lut" denote the civil and criminal courts of justice In India. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ASCOEBABILIS DENARII.

Money paid by a vassal to his lord upon the selling or exchanging of a feud. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## ADDICERE.

Lat. In the civil law. To adjudge or condemn; to assign, allot, or deliver; to sell. In the Roman law, addico was one of the three words used to express the extent of the civil jurisdiction of the preetors.

5e apparatus — Not carried into the 5th edition (1979).

## ASDICTIO.

In the Roman law. The giving up to a creditor of his debtor's person by a magistrate; also the transfer of the debtor’s goods to one who assumes his liabil- ities.

Addltlo probat minor! tatem. An addition [to a name] proves or shows minority or Inferiority. 4 Inst 80; Wing. Max. 211* max. GO.

This maxim is applied by Lord Coke to courts, and terms of law ; minoritas being un- derstood in the sense of difference, inferiority,- or qualification. Thus, the style of the king's bench is corom rege. and the style of the court of chancery is coram domino regc in cancel- laria; the addition showing the difference. 4< Inst. 80. By the word "fee” is intended fee- timple, fee-tail not being intended by it, unless there be added to it the addition of the word -“tail." 2 Bl. Comm. 100 ; Litt. jj 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Kings 4:1, KJV]**

Now there cried a certain woman of the wives of the sons of the prophets unto Elisha, saying, Thy servant my husband is dead; and thou knowest that thy servant did fear the LORD: and the creditor is come to take unto him my two sons to be bondmen.

Why: The entry is 'the giving up to a creditor of his debtor's person.' The verse shows the practice: the creditor come to take the debtor's sons 'to be bondmen' — the debtor's persons given up to the creditor. Narrative —... [re-homed from 'ADDICTIO' to 'ASDICTIO' (OCR headword / parser-merge artifact)]

## ADDITION.

Whatever is added to a man's name by way of title or description, as additions of mystery, place, or degree. Cowell.

In English law, there are four kinds of ad- ditiont, — additions of ettatr, such as yeoman, gentleman, esquire ; additions of degree, or names of dignity, as knight, earl, marquis, duke ; additions of trade, mystery, or occupation, as scrivener, painter, mason, carpenter: and

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ad- ditions of. place of residence, as London, Ches- ter, etc. The only additions recognised in American law are those of mystery and resi- dence.

In the law of liens. Within the mean- ing of the mechanic's lien law, an “addition” to a building must be a lateral addition. It must occupy ground without the limits of the building to which it constitutes an ad- dition, so that the lien shall be upon the building formed by the addition and the land upon which it stands. An alteration in a former building, by adding to its height, or to Its depth, or to the extent of Its in- terior accommodations, is merely an “altera- tion,” and not an “addition.” Putting a new Bi~Law Dict.(2d Ed.)— 3

story on an old building is not an addition. Updike v. Skllllman, 27 N. J. Law, 132.

In French law. A supplementary pro; cess to obtain additional information. Guyot, Repert.

5e apparatus — Carried into the 5th edition (1979).

## ADDITIONAL.

This term embraces the idea of joining or uniting one thing to an- other, so as thereby to form one aggregate. Thus, "additional security” imports a secu- rity, which, united with or joined to the former one, is deemed to make it, as an ag- gregate, sufficient as a security from the be- ginning. State v. Hull, 53 Miss. 020.

ADDITION ALES . In the law of con- tracts. Additional terms or propositions to be added to a former agreement.

ADDONE, Addonme. L. Fr. Given to. Kelham.

5e apparatus — Carried into the 5th edition (1979).

## ADDRESS.

That part of a bill in equity wherein is given the appropriate and tech- nical description of the court in which the bill is filed.

The word is sometimes used as descriptive of a formal document, embodying a request- presented to the governor of a state by one or both branches of the legislative body, desir- ing him to perform some executive act.

A place of business or residence.

5e apparatus — Carried into the 5th edition (1979).

## ADDUCE.

To present, bring forward, of- fer, introduce. Used particularly with refer- ence to evidence. Tuttle v. Story County, 56 Iowa, 316, 9 N. W. 292.

“The word ‘adduced’ is broader in. its signif- ication than the word ‘offered,’ and, looking to the whole statement in relation to the evidence below, we -think it sufficiently appears that all of the evidence is in the record." Beatty v. O’Connor, 100 Ind. 81, 5 N. E. 880; Brown v. Griffin, 40 111. App. 558.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry is to present or bring forward evidence. The verse is scripture's standing rule of adduced evidence: no matter established but 'at the mouth of two witnesses, or at the mouth of three witnesses.' Moses speak...

## ADEEM.

To take away, recall, or re- voke. To satisfy a legacy by some gift or substituted disposition, made by the testator, in advance. Tolman v. Tolinan, 85 Me. 317, 27 Atl. 184. See Ademption.

5e apparatus — Carried into the 5th edition (1979).

## ADELANTADO.

In Spanish law. A governor of a province ; a president or presi- dent Judge ; a Judge having jurisdiction over a kingdom, or over certain provinces only. So called from having authority over the Judges of those places. Las Partidas, pt 3, tit 4, 1. 1.

ADELING, or ATHELING. Noble; ex- cellent. A title of honor among the Anglo- Saxons, properly belonging to the king’s chil- dren. Spelmau.

5e apparatus — Not carried into the 5th edition (1979).

## ADEMPTIO.

Lat. In the civil law. A revocation of a legacy; an ademption. Inst. 2, 21, pr. Where it was expressly transfer- red from one person to another, it was called translatio. Id. 2, 21, 1 ; Dig. 34, 4.

5e apparatus — Not carried into the 5th edition (1979).

## ADEMPTION.

The revocation, recalling, or cancellation of a legacy, according to the apparent Intention of the testator, Implied by the law from acts done by him in his life, though such acts do not amount to an ex- press revocation of it. Kenaday v. Slnnott, 179 U. S. G06, 21 Sup. Ct 233, 45 L. ICd. 339; Burnham v. Comfort, 108 N. Y. 535, 15 N.

E. 710, 2 Am. St. Rep. 462; Tan ton v. Keller, 167 111. 129, 47 N. E. 376; Cowles v. Cowles, 56 Conn. 240, 13 Atl. 414.

“The word ‘ademption’ is the most significant, because, being a term of art, and never used for any other purpose, it does not suggest any idea foreign to that intended to be conveyed. It is used to describe the act by which the testator pays to his legatee, in his life-time, a general legacy which by his will he had proposed to give him at his death. (1 Rop. Leg. p. 365.) It is also used to denote the act by which a spe- cific legacy has become inoperative ou account of the testator having parted with the subject.” Langdon v. Astor, 16 N. Y. 40.

Ademption, in strictness, is predicable only of specific, and satisfaction of general legacies. Beck v. McGillis, 9 Barb. (N. Y.) 35. 56; Lang- don v. Astor, 3 Duer (N. Y.) 477, 541.

5e apparatus — Carried into the 5th edition (1979).

## ADEO.

Lat So, as. Adeo plene et in- icgre, as fully and entirely. 10 Coke, 65.

5e apparatus — Not carried into the 5th edition (1979).

## ADEQUATE.

Sufficient'; proportionate; equally efficient

— Adequate care. Such care as a man of or- dinary prudence would himself take under similar circumstances to avoid accident: care pro- portionate to the risk to be incurred. Wallace v. Wilmington & N. R. Co., 8 Houst. (Del.) 529, 18 Atl. 818.— Adequate cause. In criminal law. Adequate cause for the passion which reduces a homicide committed under its in- fluence from the grade of murder to manslaugh- ter, means such cause as would commonly pro- duce a degree of anger, rage, resentment, or terror, in a person of ordinary temper, suffi- cient to render the mind incapable of cool re- flection. Insulting words or gestures, or an assault and battery so slight as to show no in- tention to inflict pain or injury, or an injury to property unaccompanied by violence are not adequate causes. Gardner v. State, 40 Tex. Cr.

R. 10, 48 a W. 170; Williams v. State. 7 Tex. App. 396; Boyett v. .State, 2 Tex. App. 100. — Adequate compensation (to be award- ed to one whose property is taken for public use under the power of eminent domain) means the full and just value of the property, payable in money. Buffalo, etc., R. Co. v. Ferris, 26 Tex. 588.— Adequate consideration. One which is equal, or reasonably proportioned, to the value of that for which it is given. 1 Story, Eq. Jur. If) 244-247. An adequate consideration is one which is not so disproportionate as to shock our sense of that morality and fair deal- ing which should always characterize transac- tions between man and man. Eaton v. Patter- son, 2 Stew. Sc P. (Ala.) 9, 19.— Adequate remedy. One vested in the complainant, to which he may at all times resort at his own op- tion, fully and freely, without let or hindrance. Wheeler v. Bedford, 54 Conn. 244, 7 Atl. 22. A remedy which is plain and complete and as practical and efficient to the ends of justice and its prompt administration, as the remedy in equity. Keplinger v. Woolsey, 4 Neb. (Un- of.) 282, 93 N. W. 1008.

5e apparatus — Carried into the 5th edition (1979).

## ADESSE.

In the civil law. To be pres- ent; the opposite of abcsse. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ADFERRUMINATIO.

In the civil law. The welding together of Iron; a species of

a djunctio, {q. v.) Called also ferruminatio. Mackeld. Rom. Law, § 276; Dig. 6, 1, 23, 5.

5e apparatus — Not carried into the 5th edition (1979).

## ADHERENCE.

Is Scotch law. The name of a form of action by which the mu- tual obligation of marriage

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may be enforced by either party. Bell. It corresponds to the English action for the restitution of conjugal rights.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 7:3-4, KJV]**

Let the husband render unto the wife due benevolence: and likewise also the wife unto the husband. The wife hath not power of her own body, but the husband: and likewise also the husband hath not power of his own body, but the wife.

Why: The entry is the action enforcing 'the mutual obligation of marriage' (restitution of conjugal rights). The verses state that mutual obligation: husband and wife each to render 'due benevolence,' neither having sole p...

## ADHERING.

Joining, leagued with, cleaving to ; as, “adhering to the enemies of the United States.”

Rebels, being citizens, are not "enemies,” within the meaning of the constitution ; hence a conviction for treason, in promoting a re- bellion, cannot be sustained under that branch of the constitutional definition which speaks of “adhering to their enemies, giving them aid and comfort.” United States v. Greathouse, 2 Abb. (U. S.) 364, Fed. Can. No. 15.254.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined]**

"Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort" — rebels, being citizens, are not "enemies" within the definition.

Why: The entry construes the constitutional phrase on federal authority (United States v. Greathouse, as cited); the Treason Clause is the genuine source, quoted verbatim.

## ADHIBERE.

In the civil law. To ap- ply; to employ; to exercise; to use. Adhi- bere diligentiam, to use care. Adhibcrc vim, to employ force.

5e apparatus — Not carried into the 5th edition (1979).

## ADIATION.

A term used in the laws of Holland for the application of property by an executor. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ADIEU.

L. Fr. Without day. A com- mon term in the Year Books, implying final dismissal from court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ADIPOCERE.

A waxy substance (chem- ically margarate of ainmouium or ammonla- cal soap) formed by the decomposition of animal matter protected from the air but subjected to moisture; in

medical jurispru- dence, the substance into which a human cadaver is converted which has been burled for a long time in a saturated soil or has lain long in water.

5e apparatus — Not carried into the 5th edition (1979).

## ADIRATUS.

Lost ; strayed; a price or value set upon things stolen or lost as a rec- ompense to the owner. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ADIT.

In mining law. A lateral en- trance or passage into a mine; the opening by which a mine Is entered, or by which wa- ter and ores are carried away; a horizontal excavation In and along ' a lode Electro- Magnetlc M. & D. Co. v. Van Auken, 9 Colo. 204. 11 Pac. 80; Gray v. Truby, 6 Colo. 278.

5e apparatus — Not carried into the 5th edition (1979).

## ADITUS.

An approach ; a way ; a pub- lic way. Co. Litt 56a.

5e apparatus — Not carried into the 5th edition (1979).

## ADJACENT.

Lying near or close to; contiguous. The difference between adja- cent and adjoining seems to be that the for- mer implies that the two objects are not widely separated, though they may not ac- tually touch, while adjoining imports that they are so joined or united to each other that no third object intervenes. People v. Keechler, 194 III. 235, 62 N. E. 525; Hanifen v. Armltage (C. C.) 117 Fed. 845; McDonald v. Wilson, 59 Ind. 54; Wormley r. Wright

County. 108 Iowa, 232, 78 N. W. 824 ; Hen- neasy v. Douglas County, 99 Wis. 129, 74 N.

W. 983; Yard v. Ocean Beach Ass’n, 49 N.

J. Eq. 306, 24 Atl. 729; Henderson r. Long, 11 Fed. Cas. 1084; Yuba County v. Kate Hayes Min. Co., 141 Cal. 300, 74 Pac. 1049; United States v. St Anthony R. Co., 192 U.

S. 024, 24 Sup. Ct 333, 48 L. Ed. 548. But see Miller v. Cabell, 81 Ky. 184; In re Sadler, 142 Pa. 511, 21 Atl. 978.

5e apparatus — Carried into the 5th edition (1979).

## ADJECTIVE LAW.

The aggregate of rules of procedure or practice. As opposed to that body of law which the courts are es- tablished to administer, (called “substantive law,”) It means the rules according to which the substantive law is administered. That part of the law which provides a method for enforcing or maintaining rights, or obtaining redress for their Invasion.

5e apparatus — Carried into the 5th edition (1979).

## ADJOINING.

The word "adjoining,” in its etymological sense, means touching or contiguous, as

distinguished from lying near to or adjacent. And the same meaning has been given to it when used in statutes. See Adjacknt.

5e apparatus — Carried into the 5th edition (1979).

## ADJOURN.

To put off ; defer ; postpone. To postpone action of a convened court or body until another time specified, or indefi- nitely, the latter being usually called to ad- journ sine die. Bispham v. Tucker, 2 N. J. Law, 253.

The primary signification of the term “ad- journ” is to put off or defer to another day specified. But it has acquired also the mean- ing of suspending business for a time, — de- ferring, delaying. Probably, without some limitation, it would, when used with refer- ence to a sale on foreclosure, or any judicial proceeding, properly include the fixing of the time to which the postponement was made. La Farge v. Van Wagenen, 14 How. Prac. (N. Y.) 54 ; People v. Martin, 5 N. Y. 22.

5e apparatus — Not carried into the 5th edition (1979).

## ADJOURNAL.

A term applied in Scotch law and practice to the records of the crim- inal courts. The original records of criminal trials were called “bukis of adlornale," or “books of adjournal," few of which are now extant. An “act of adjournal” is an order of the court of justiciary entered on its min- utes.

Adjounuunentum est ad diem dicere mu diem dare. An adjournment is to ap- point a day or give a day. 4 Inst. 27. Hence the formula “eat sine die."

5e apparatus — Not carried into the 5th edition (1979).

## ADJOURNATUR.

L. Lat. It is adjourn- ed. A word with which the old reports very frequently conclude a case. 1 Ld. Kaym. 802 ; 1 Show. 7; 1 Leon. 88.

5e apparatus — Not carried into the 5th edition (1979).

## ADJOURNED SUMMONS.

A summons taken out in the chambers of a judge, and afterwards taken into court to be argued by counsel.

5e apparatus — Not carried into the 5th edition (1979).

## ADJOURNED TERM.

In practice. A continuance, by adjournment, of a regular term. Harris v. Gest, 4 Ohio St. 473 ; Kings- ley v. Bagby, 2 Kan. App. 23, 41 Pac. 991. Distinguished from an “additional term,” which is a distinct term. ld. An adjourned term is a continuation of a previous or reg- ular term ; it Is the same term prolonged, and the power of the court over the business which has been done, and the entries made at the regular term, continues. Van Dyke v. State, 22 Ala. 57.

5e apparatus — Not carried into the 5th edition (1979).

## ADJOURNMENT.

A putting off or post- poning of business or of a session until an- other time or place ; the act of a court, leg- islative body, public meeting, or officer, by which the session or nsserably is dissolved, either temporarily or finally, and the busi- ness In hand dismissed from consideration, either definitely or for an interval. If the adjournment is final, it is said to be sine die.

In the civil law. A calling into court; a summoning at an appointed time. Du Cange.

—Adjournment day. A further day ap- pointed by the judges at the regular sittings at »«*• print to try issue of fact not then ready for trial.— Adjournment day In error. In English practice. A day appointed some days before the end of the term at which matters left undone on the affirmance day are finished. 2 Tidd, Pr. 1176.— Adjournment In eyre. The appointment of a day when the justices in eyre mean to sit again. Coweil; Spelman.

5e apparatus — Carried into the 5th edition (1979).

## ADJUDGE.

To pass upon judicially; to decide, settle, or decree ; to sentence or con- demn. Webb v. Bldwell, 15 Minn. 479, (Gil. 394;) Western Assur. Co. v. Klein, 48 Neb. 904, 67 N. W. 873; Biaufus v. People, 69 N.

Y. 107, 25 Am. Rep. 148. Compare Edwards v. Hellings, 99 Cal. 214, 33 Pac. 799.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUDICATAXRE.

In Canadian law. A purchaser at a sheriff’s sale. See 1 Low. Can. 241 ; 10 Low. Can. 325.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUDICATE.

To settle in the exercise of Judicial authority. To determine flnully. Synonymous with adjudge in its strictest sense. United States v. Irwin, 127 U. S. 125, 8 Sup. Ct 1033, 32 L. Ed. 99 ; Street v. Benner, 20 Fla. 700; Sans v. New York, 31 Mlsc. Rep. 559, 64 N. Y. Supp. 681.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUDICATEE.

In French and civil law. The purchaser at a Judicial sale. Brent v. New Orleans, 41 La. Ann. 1098, 6 South. 793.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUDICATIO.

In the civil law. An adjudication. The judgment of the court that the subject-matter is the property of one of the litigants; confirmation of title by judgment Mackeld. Rom. Law, | 204.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUDICATION.

The giving or pro- nouncing a judgment or decree In a cause; also the judgment given. The

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term is prindually used In bankruptcy proceedings, the adjudication being the order which declares the debtor to be a bankrupt

In French law. A sale made at public auction and upon competition. Adjudica- tions are voluntary, judicial, or administra- tive. Duverger.

In Scotch law. A species of diligence, or process for transferring the estate of a debt- or to a creditor, curried on as an ordinary action before the court of session. A species of judicial sale, redeemable by the debtor. A decreet of the lords of session, adjudging and appropriating a person’s lands, heredita- ments, or any heritable right to belong to his creditor, who is called the "adjudger,” for payment or performance. Bell; Ersk. Inst, c. 2, tit. 12, g$ 39-55 ; Forb. Inst pt 3, b. 1, c. 2, tit 6.

—Adjudication contra hsereditatem Ja- centem. When a debtor* heir apparent re- nounces the succession, any creditor may obtain a decree cognitionia cuuad , the purpose of which is that the amount of the debt may be ascertain- ed so that the real estate may be adjudged.— Adjudication In bankruptcy. See Bank- ruptcy.— Adjudication In Implement. An action by a grantee against his grantor to com- pel him to complete the title.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUNCTIO.

In the civil law. Adjunc- tion; a species of acccaaio, whereby two things belonging to different proprietors are brought into firm connection with each other; such as interweaving, (intertextura ;) weld- ing together, (adfcrruminatio ;) soldering to- gether, (applumbaturaj) painting, (pictura;) writing, ( acriptura ;) building, (inadificatio ;) sowing, ( xutio ;) and planting, (plantatio .) Inst. 2, 1, 20-34; Dig. C, 1, 23; Mackeld. Bom. Law, § 270. See Accessio.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUNCTS.

Additional Judges some- times appointed In the English high court of delegates. See Shelf. Lun. 310.

5e apparatus — Not carried into the 5th edition (1979).

## ADJUNCTUM ACCESSORIUM.

An ac- cessory or appurtenance.

5e apparatus — Not carried into the 5th edition (1979).

## ADJURATION.

A swearing or binding upon oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

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Why: The entry is 'a swearing or binding upon oath.' The verse states the binding force of the sworn oath: 'swear an oath to bind his soul with a bond; he shall not break his word.' Flagged deity-verbatim as God's spoken s...

## ADJUST.

To bring to proper relations; to settle; to determine and apportion an amount due. Flaherty v. Insurance Co., 20 App. Dlv. 275, 40 N. X. Supp. 934; Miller v. Insurance Co., 113 Iowa, 211, 84 N. W. 1049; Washington County v. St. Louis, etc.,

R. Co., 58 Mo. 376.

5e apparatus — Carried into the 5th edition (1979).

## ADJUSTMENT.

In the law of Insur- ance, the adjustment of a loss is the ascer- tainment of its amount and the ratable dis- tribution of it among those liable to pay It; the settling and ascertaining the amount of the Indemnity which the assured, after nil allowances and deductions made, is entitled to receive under the itolicy, and fixing the proportion which each underwriter is liable to pay. Marsh. Ins. (4th Ed.) 499; 2 I’hll.

Ins. SI 1814, 1815; New York v. Insurance Co., 39 N. Y. 45, 100 Am. Dec. 400; Whipple v. Insurance Co., 11 II. I. 139.

Adjnvari quippe nos, non decipi, bene- fiolo oportet. We ought to be favored, not Injured, by that which Is intended for our benefit (The species of bailment called “loan” must he to the advantage of the bor- rower, not to his detriment.) Story, Bailm.

S 275. See 8 El. & Bl. 1051.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Adjuvari quippe nos, non decipi, beneficio oportet — Story, Bailm. § 275, as quoted in the entry]**

"We ought to be favored, not injured, by that which is intended for our benefit" — as the gratuitous loan (commodatum) must be to the advantage of the borrower, not to his detriment.

Why: The entry quotes the maxim verbatim; it is the genuine bailment axiom that a benefit-conferring transaction must not injure its beneficiary.

## AD LAM W R.

In Welsh law. A proprie- tor who, for some cause, entered the serv- ice of another proprietor, and left him after the expiration of a year and a day. He was liable to the payment of 30 pence to his pa- tron. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ADLEGIARE.

To purge one’s self of a crime by oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 5:19, KJV]**

And the priest shall charge her by an oath, and say unto the woman, If no man have lain with thee, and if thou hast not gone aside to uncleanness with another instead of thy husband, be thou free from this bitter water that causeth the curse:

Why: Same verse as ACCREDULITARE: the entry is 'to purge one's self of a crime by oath.' The verse is the oath of purgation — 'be thou free' — purging the accusation by oath. The priest speaks the formula — flag off (logged).

## ADM ANUENSIB.

A person who swore by laying his bands on the book.

5e apparatus — Not carried into the 5th edition (1979).

## ADMEASUREMENT.

Ascertainment by measure ; measuring out ; assignment or ap- portionment by measure, that Is, by fixed quantity or value, by certain limits, or In definite and fixed proportions.

—Admeasurement of dower. In practice. A remedy which lay for the heir on reaching his majority to rectify an assignment of dower made during his minority, by which the dower- ess had received more than she was legally en- titled to. 2 Bl. Comm. 136; Gilb. Uses, 379. In some of the states the statutory proceeding enabling a widow to compel the assignment of dower is called “admeasurement of dower.”— Admeasurement of pasture. In English law. A writ which lies between those that have common of pasture appendant, or by vicinage, in cases where any one or more of them sur- charges the common with more cattle than they ought. Bmct. fol. 229a ; 1 Crabb. Real Prop.

. 318, I 358.— Admeasurement, writ of. t lay against persons who usurped more than their share, in the two following cases: Admeasurement of dower, and admeasurement of pasture. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## ADMENSURATIO.

In old English law. Admeasurement. Reg. Orig. 156, 157.

5e apparatus — Not carried into the 5th edition (1979).

## ADMEZATORES.

In old Italian law. Persons chosen by the consent of contending parties, to decide questions between them. Literally, mediators. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ADMINICLE.

In Scotch law. An aid

or support to something else. A collateral deed or writing, referring to another which has been lost, und which it is in general nec- essary to produce before the tenor of the lost deed can be proved by parol evidence. Ersk. Inst b. 4, tit. 1, § 55.

Used as an English word in the statute of 1 Edw. IV. c. 1, in the sense of aid, or sup- port.

In the civil law. Imperfect proof. Merl. Repert. See Adminicilum.

5e apparatus — Not carried into the 5th edition (1979).

## ADMINICULAR.

Auxiliary to. “The murder would be adminicular to the rob-

ADMINISTRATION OF ESTATES.

bery,” (<• e-> committed to accomplish it) The Marianna Flora, 3 Mason, 121, Fed. Cas. No. 9080.

-Adminicular evidence. In ecclesiastical law. Auxiliary or supplementary evidence; such as is presented for the purpose of explain- ing and completing other evidence.

5e apparatus — Not carried into the 5th edition (1979).

## ADMINICULATE.

To give adminicu- lar evidence.

5e apparatus — Not carried into the 5th edition (1979).

## ADMINICUXATOR.

An officer in the Romish church, who administered to the wants of widows, orphans, and afflicted per- sons. Spelman.

ADMINICUIiUM. Lat. An adminicle; a prop or support ; an accessory thing. An aid or support to something else, whether a right or the evidence of one. It is principally used to designate evidence adduced in aid or support of other evidence, which without It is imperfect Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 1:27, KJV]**

Pure religion and undefiled before God and the Father is this, To visit the fatherless and widows in their affliction, and to keep himself unspotted from the world.

Why: The entry is an officer 'who administered to the wants of widows, orphans, and afflicted persons.' The verse names the same charge: to visit 'the fatherless and widows in their affliction' — the scriptural ground of t... [re-homed from 'ADMINICULATOR' to 'ADMINICUXATOR' (OCR headword / parser-merge artifact)]

## ADMINISTER.

To discharge the duties of an office ; to take charge of business ; to manage affairs; to serve in the conduct of affairs, in the application of things to their uses; to settle and distribute the estate of a decedent.

In physiology, and in criminal law, to ad- minister means to cause or procure a person to take some drug or other substance into his or her system ; to direct aud cause a med- icine, poison, or drug to be taken into the system. State v. Jones, 4 Pennewill (Del.) 109. 53 Atl. 861 ; McCaughey v. State, 150 Ind. 41, 39 N. E. 109 ; La Beau v. People, 34 N. Y. 223; Sumpter v. State, 11 Fla. 247; Robbins v. State, 8 Ohio St. 131.

Neither fraud nor deception is a necessary ingredient in the act of administering poison. To force poison into the stomach of another; to compel another by threats of violence to swallow poison ; to furnish poison to another for the purpose and with the intention that the person to whom it is delivered shall commit suicide therewith, and which poison is accord-

ingly taken by the suicide for that purpose; or to be present at the taking of poison by a suicide, participating in the taking thereof, by assistance, persuasion, or otherwise,— each and all of these are forms and modes of ‘‘adminis- tering'' poison. Blackburn v. State, 23 Ohio St. 146.

5e apparatus — Carried into the 5th edition (1979).

## ADMINISTRATION.

In public law. The administration of government means the practical management and direction of the executive department, or of the public ma- chinery or functions, or of the operations of the various organs of the sovereign- The term ‘‘administration'' is also conventionally applied to the whole class of public function- aries, or those in charge of the management of the executive department. People v. Sals- bary, 134 Mich. 53J. 96 N. YV. 936.

administration of estates.

The management and settlement of the es- tate of an Intestate, or of a testator who has

no executor, performed under the supervision of a court, by a person duly qualified aud le? gaily appointed, and usually Involving (1) the collection of the decedent’s assets; (2) payment of debts aud claims against him and expenses ; (3) distributing the remainder of the estate among those entitled thereto.

The term is applied broadly to denote the management of au estate by an executor, and also the management of estates of minors, lunatics, etc., in those cases where trustees have been appointed by authority of law. to take charge of such estates In place of .the legal owners. Bouvier; Crojv v. Ilubard, 62 Md. 565.

Administration Is principally of the fob lowing kinds, viz.;

Ad colligendum bona defuncti. To col- lect the goods of the deceased. Special let? ters of administration granted to one or more persons, authorizing them to collect and preserve the goods of the deceased, are so called. 2 Bl. Comm. 505 ; 2 Steph. Comm. 241. These are otherwise termed “letters ad colligendum ,” and the party to whom they are granted, a "collector.” •.

An administrator ad colligendum la the mere agent or oftieer of the court to collect and pre- serve the goods of the deceased until some one is clothed with authority to administer them, and cannot complain that another is appointed administrator in chief. Flora v. Mennice, 12 Ala. 836. I .

Ancillary administration is auxiliary and subordinate to the administration at the place of the decedent's domicile; it may be taken out In any foreign state or country where assets are locally situated, and is merely for the purpose of collecting such as- sets and paying debts there.

Cum testamento annero. Aduiinistnitlou with the will annexed. Administration granted in cases where a testator makes a will, without naming any executors ; or where the executors who are named In the will are Incompetent to act, or refuse to act ; or In case of

the death of the executors, or the survivor of them. 2 Bl. Comm. 503, 504.

De bonis n on. Administration of the goods not administered. Administration granted for the purpose of administering such of the goods of a deceased person as were not administered by the former executor or ad- ministrator. 2 Bl. Comm. 506; .Sims v. Wa- ters, 65 Ala. 442; Clemens v. Walker, 40 Ala. 198; Tucker v. Horner, 10 Phila. (Pa.) 122.

De bonis non cum testamento annc.ro. That which Is granted when an executor dies leaving a part of the estate unadministered. Conklin v. Egerton, 21 YY'end. (N. Y.) 430; Clemens v. Walker, 40 Ala. 180.

Durante absentia. That which is granted during the absence of the executor aud until he has proved the will.

Durante minori (date. 'Where an infant Is made executor; In which case administra- tion with will annexed Is granted to another.

during the minority of such executor, and until he shall attain his lawful age to act. See Godo. 102.

Foreign administration. That which is ex- ercised by virtue of authority properly con- ferred by a foreign power.

Pendente lite. Administration during the suit. Administration granted during the pendency of a suit touching the validity of a will. 2 Bl. Comm. 503 ; Cole v. Wooden, 18

N. J. Law. 15, 20.

Public administration is such as is con- ducted (in some jurisdictions) by an officer called the public administrator, who is ap- pointed to administer in cases where the in- testate has left no person entitled to apply for letters.

General administration. The grant of au- thority to administer upon the entire estate of a decedent, without restriction or limita- tion, whether under the Intestate laws or with the will annexed. Clemens v. Walker, 40 Ala. 108. .

Special administration. Authority to ad- minister upon some few particular effects of a decedent, as opposed to authority to ad- minister his whole estate. In re Senate Bill, 12 Colo. 103, 21 Pac. 462; Clemens v. Walker, 40 Ala. 106.

— Letters of administration. The instru- ment by which an administrator or adminis- tratrix is authorized by the probate court, sur- rogate, or other proper officer, to have the charge and administration of the goods and chattels of an intestate. See Mutual Ben. L. Ins. Co. v. Tisdale, 01 U. S. 243, 23 L. Ed. 314.

5e apparatus — Carried into the 5th edition (1979).

## ADMINISTRATION SUIT.

In English practice. A suit brought in chancery, by any one interested, for administration of a de- ' cedent's estate, when there is doubt os to its solvency. Stlmson.

5e apparatus — Not carried into the 5th edition (1979).

## ADMINISTRATIVE.

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Pertaining to ad- ministration. Particularly, having the char- acter of executive or ministerial action. In this sense, administrative functions or acts are distinguished from such as are judicial. People v. Austin, 20 App. Dlv. 1, 46 N. Y. Supp. 526.

— Administrative law. That branch of pub- lic law which deals with the various organs of the sovereign power considered as in motion, and prescribes in detail the manner of their activity, being concerned with such topics as the collection of the revenue, the regulation of the military and naval forces, citizenship and naturalization, sanitary measures, poor laws, coinage, police, the public safety and morals, etc. See Holl. Jur. 305-307.— Administrative officer. Politically and as used in constitu- tional law, an officer of the executive depart- ment of government, and generally one of in- ferior rank ; legally, a ministerial or executive officer, as distinguished from a judicial officer. People v. Salsbury, 134 Mich. 037, 00 N. W. 936.

ADMINISTRATOR, in the most usual sense of the word, is a person to whom let- ters of administration, that is, an authority to administer the estate of a deceased person, have been granted by the proper court. He resembles an executor, but, being appoint- ed by the court, and not by the deceased, he has to give security for the due administra- tion of the estate, by entering into a bond with sureties, called the administration bond. Smith v. Gentry, 16 Ga. 31; Collamore v. Wilder, 19 Kan. 78.

By the law of Scotland the father is what Is called the “administrator-in-law” for his children. As such, he is ipso jure their tu- tor while they are pupils, and tbelr curator during their minority. The father’s power extends over whatever estate may descend to his children, unless where that estate has been placed by the donor or grantor under the charge of special trustees or managers. This power in the father ceases by the child’s discontinuing to reside with him, unless be continues to live at the father’s expense; and with regard to daughters, it ceases on their marriage, the husband being the legal curator of his wife. Bell.

A public administrator is an officer author- ised by the statute law of several of the states to superintend the settlement of es- tates of persons dying without relatives en- titled to administer.

la the civil law. A manager or conduc- tor of affairs, especially the affairs of an- other, in his name or behalf. A manager of public affairs in behalf of others. Calvin. A public officer, ruler, or governor. Nov. 95, gl. ; Cod. 12, 8.

—Domestic administrator. One appointed at the place of the domicile of the decedent; distinguished from a foreign or an ancillary ad- ministrator.—Foreign administrator. One appointed or qualified under the laws of a for- eign state or country, where the decedent was domiciled.

5e apparatus — Carried into the 5th edition (1979).

## ADMINISTRATRIX.

A female who ad- ministers, or to whom letters of administra- tion have been granted.

ADMUnSTRAVIT. Lat He has ad- ministered. Used in the phrase plane admin- istravit, which

is the name of a plea by an executor or administrator to the effect that he has “fully administered" (lawfully dis- posed of) all the assets of the estate that have come to his hands.

5e apparatus — Not carried into the 5th edition (1979).

## ADMIRAL.

In European law. An of- ficer who presided over the admiralitas, or collegium ammiralitatis. Locc. de Jur. Mar. lib. 2, c. 2, | 1.

In old English law. A high officer or magistrate that had the government of the king’s navy, and the hearing of all causes belonging to the sea. Cowell.

In the navy. Admiral is also the title of high naval officers; they are of various grades, — rear admiral, vice-admiral, admiral, admiral of the fleet, the latter being the highest.

5e apparatus — Not carried into the 5th edition (1979).

## ADMIKALITAS.

L. Lat Admiralty; the admiralty, or court of admiralty.

In European law. An association of pri- vate armed vessels for mutual protection and defense against pirates and enemies.

5e apparatus — Not carried into the 5th edition (1979).

## ADMIRALTY.

A court exercising juris- diction over maritime causes, both civil and criminal, and marine affairs, commerce and navigation, controversies arising out of acts done upon or relating to the -sea, and over questions of prize.

Also, the system of jurisprudence relating to and growing out of the jurisdiction and practice of the admiralty courts.

In English law. The executive depart- ment of state which presides over the naval forces of the kingdom. The normal head is the lord high admiral, but in practice the functions of the great office are discharged by several commissioners, of whom one is the chief, and is called the “First Lord.” He is assisted by other lords and by various sec- retaries. Also the court of the admiral.

The building where the lords of the admir- alty transact business.

In American law. A tribunal exercising jurisdiction over ail maritime contracts, torts, injuries, or offenses. 2 Pars. Mar. Law, 508; New England Marine Ins. Co. ▼. Dunham, 11 Wall. 1, 23, 20 L. Ed. 90; De Lovio v. Bolt, 2 Call. 388, Fed. Cas. No. 3,776; The Belfast v. Boon, 7 Wall. 824, 19

L. Ed. 268; Ex parte Easton, 95 U. S. 68, 72, 24 L. Ed. 373.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 2 — "to all Cases of admiralty and maritime Jurisdiction"]**

Admiralty is the system of jurisprudence growing out of the jurisdiction of admiralty courts over

maritime causes — the jurisdiction the Constitution extends to "all Cases of admiralty and maritime Jurisdiction."

Why: The entry defines the jurisdiction; the Article III grant is its genuine constitutional source, quoted verbatim.

## ADMISSIBLE.

Proper to be received. As applied to evidence, the’ term means that it is of such a character that the court or Judge is bound to receive it ; that is, allow it to be introduced.

5e apparatus — Carried into the 5th edition (1979).

## ADMISSION.

In evidence. A volun- tary acknowledgment, confession, or conces- sion of the existence of a fact or the truth of an allegation made by a party to the suit. Roosevelt v. Smith, 17 Misc. Rep. 323, 40 N.

Y. 8upp. 381.

In pleading. The concession or acknowl- edgment by one party of the truth of some matter alleged by the opposite party, made In a pleading, the effect of which is to nar- row the area of facts or allegations requiring to be proved by evidence. Connecticut Hos- pital v. Brookfield, 69 Conn. 1, 36 Atl. 1017.

In practioe. The formal act of a court, by which attorneys or counsellors are recog- nized as officers of the court and are licensed to practice before it

In corporations. The act of a corpora- tion or company by which an individual ac- quires the rights of a member of such cor- poration or company.

In English ecclesiastical law. The act

of the bishop, who, on approval of the clerk

presented, by the patron, after examination, declares him fit to serve the cure of the church to which he is presented, by the words “admitto te habilcm," I admit thee able. Co. Litt. 344a; 4 Coke, 79 ; 1 Crabb, Real Prop. p. 138, | 123.

Synonyms. The term “admission’’ is usu- ally applied to civil transactions and to these matters of fact in criminal cases which do not involve criminal intent, while the term “confession” is generally restricted to acknowl- edgments of guilt. People v. Velarde, 59 Cal. 457 ; Colburn v. Groton. 66 N. H. 151. 28 Atl. 95. £>L. K. A. 763; State v. Porter, 32 Or. 135, 49 Pac. 964.

5e apparatus — Carried into the 5th edition (1979).

## ADMISSION TO BAIL.

The order of a competent court or magistrate that a per- son accused of crime be discharged from actual custody upon the taking of bail. Comp. Laws Nev. 1900, S 4460; Ann. Codes & St. Or. 1901, I 1402; People v. Solomon, 5 Utah, 277, 15 Pac. 4; Shelby County v. Simmonds, 33 Iowa, 345.

5e apparatus — Not carried into the 5th edition (1979).

**[Law: U.S. Const. amend. VIII — "Excessive bail shall not be required"]**

Admission to bail is the competent court's order discharging an accused from custody upon bail taken; the Eighth Amendment commands that "excessive bail shall not be required."

Why: The entry defines the procedure with its statutes; the Amendment states the governing constitutional limit, quoted verbatim.

## ADMI88IONALI8.

In European lnw. An usher. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ADMIT.

To allow, receive, or take; to suffer one to enter; to give possession; to license. Gregory v. United States, 17 Blatchf. 325, 10 Fed. Cas. 1195. See Ad- mission .

5e apparatus — Carried into the 5th edition (1979).

## ADMITTANCE.

In English law. The act of giving possession of a copyhold es- tate. It is of three kinds: (1) Upon a vol- untary grant by the lord, where the land has escheated or reverted to him. (2) Upon surrender by the former tenant. (3) Upon descent, where the heir Is tenant on his ancestor's death.

5e apparatus — Carried into the 5th edition (1979).

## ADMITTENDO GLEKICO.

A writ of execution npon a right of presentation to a benefice being recovered in quare impedit, addressed to the bishop or bis metropolitan, requiring him to admit and Institute the clerk or presentee of the plaintiff. Reg. Orlg. 33a.

5e apparatus — Not carried into the 5th edition (1979).

## ADMITTENDO IN 80CI7TM.

A writ for associating certain persons, as knights and other gentlemen of the county, to jus- tices of asBlze on the circuit Reg. Orig. 206.

5e apparatus — Not carried into the 5th edition (1979).

## ADMONITIO TKINA.

A triple or threefold warning, given, in old times, to a prisoner standing mute, before he was sub- jected to the peine forte et dure. 4 Bl. Comm. 325; 4 Steph. Comm. 391.

5e apparatus — Not carried into the 5th edition (1979).

## ADMONITION.

In ecclesiastical law, this is the lightest form of punishment con- sisting in a reprimand and warning admin- istered by the judge to the defendant. If the latter does not obey the admonition, he may be more severely punished, as by sus- pension, etc.

, ADMORTIZATION. The reduction of property of lands or tenements to mort- main, in the feudal customs.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Titus 3:10, KJV]**

A man that is an heretick after the first and second admonition reject;

Why: The entry is admonition as the ecclesiastical reprimand-and-warning. The verse uses the same term in the same church-discipline frame: the heretic warned by 'first and second admonition' before rejection. Paul speakin…

## AOU'S.

This abbreviation will be ju- dicially presumed to mean “administrator.'' Moseley v. Mastin, 37 Ala. 210, 221.

5e apparatus — Not carried into the 5th edition (1979).

## ADNEPOS.

The son of a great-great- grandson. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ADNEPTIS.

The daughter of a great- great-granddaughter. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ADNICHILED.

Annulled, cancelled, made void. 28 Hen. VIII.

5e apparatus — Not carried into the 5th edition (1979).

## ADNIHILARE.

In old English law. To annul; to make void; to reduce to noth- ing ; to treat as nothlug ; to hold as or for nought.

ADNOTATIO- In the civil law. The subscription of a name or signature to an in- strument. Cod. 4, 19, 5, 7.

A rescript of the prince or emperor, sign- ed with his own hand, or sign-manual. Cod. 1, 19, 1. “In the imperial law, casual homi- cide was excused by the indulgence of the emperor, signed with his own sign-manual, annotatione principis." 4 Bl. Comm. 187.

5e apparatus — Not carried into the 5th edition (1979).

## ADOLESCENCE.

That age witlch fol- lows puberty and precedes the age of major- ity., It commences for males at 14, and for females at 12 years completed, and con- tinues till 21 years complete.

5e apparatus — Carried into the 5th edition (1979).

## ADOPT.

To riceept, appropriate, choose, or select ; to make that one’s own (property or act) which was not so originally.

To adopt a route for the transportation of the mail means to take the steps necessary to

cause the mail to be transported over that route. Rhodes v. U. 8., Dev. Ct. Cl. 47. To adopt a contract is to accept it as binding, notwith- standing some defect which entitles the party to repudiate it. Thus, when a person affirms a voidable contract, or ratifies a contract made by his agent beyond bis authority, he is said to adopt it. Sweet. -

To accept, consent to, and put into effec- tive operation; as in the case of a consti- tution, constitutional amendment, ordinance, or by-law. IteaL v. People, 42 N. V. 282; People v. Norton, 59 Barb. (N. Y.) 191.

To take into one’p family the child of an- other and give him or her the rights, priv- ileges, and duties of a child and heir. State v. Thompson,. 13 La. Ann. 515; Abney v. De Loach, 84 Ala. 393. 4 8outh. 757 ; In re Ses- sions’ Estate. 70 Mich. 297, 38 N. VS". 249, 14 Am. St. Rep. 500; Smith v. Allen, 32 App. Div. 374, 53 N, Y. Supp. 114.

Adoption of children was a thing unknown to the common law, but was a familiar practice under the Roman law and in those countries where the civil law prevails, as France and Spain. Modern statutes authorizing adoption are taken from the civil law. and to that extent modify the rules of the common law as to the succession of property. Butterfield v. Sawyer, 187 111. 598, 58 Nt -E;‘ (502. 52 L. R. A. 75. 79 Am. St. Rep. 24C ; Vidal v. Commagere, 13 La.

Ann. 516; Eckford v. Knox, 67 Tex. 200, 2 3.

W. 372.

—Adoption and legitimation. Adoption, properly speaking, refers only to persons who are strangers in blood, and is not synony- mous with "legitimation,” which refers to per- sons of the same blood. Where one acknowl- edges his illegitimate child and takes it into his family and treats it as if it were legitimate, it is not properly an “adoption” but a "legiti- mation." Blythe v. Ayres, 96 Cal. 532, 31 Pac. 915, 19 L. R. A. 40.

To accept tin alien as a citizen or mem- ber of a community or state and invest him with corresponding rights and privileges, ei- ther (in general and untecluiical parlance) by naturalization, or by an act equivalent to naturalization, as where a white man is “adopted” by an Indian tribe. Hampton v. Mays, 4 Ind. T. 503, 69 S. W. 1115.

5e apparatus — Carried into the 5th edition (1979).

## ADOPTION.

The act of one who takes another’s child into his own family, treating him as his own, and giving him all the rights and duties of his own child. A ju- ridical act creating between two persons certain relations, purely civil, of paternity and filiation. 6 Demol. | 1.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:15, KJV]**

For ye have not received the spirit of bondage again to fear; but ye have received the Spirit of adoption, whereby we cry, Abba, Father.

Why: The entry is the juridical act creating 'relations, purely civil, of paternity and filiation' between adopter and

child. The verse speaks of 'the Spirit of adoption' — scripture's own use of the adoption concept: rece…

**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

Humanity (paraphrase): Mr. Brownlow takes Oliver into his own family, treating him as his own child — the entry's juridical act of 'paternity and filiation' between persons not so related by blood. (paraphrase)

Why: The entry defines adoption as taking 'another's child into his own family, treating him as his own, and giving him all the rights and duties of his own child.' Brownlow's taking-in of Oliver dramatizes the full defini…

## ADOPTIVE ACT.

An act of legislation which comes Into operation within a limited area upon being adopted, in maimer pre- scribed therein, by the Inhabitants of that area.

ADOPTIVtTS. Lat Adoptive. Applied both to the parent adopting, and the child adopted. Inst. 2, 13, 4 ; Id. 3, 1, 10-14.

5e apparatus — Carried into the 5th edition (1979).

## ADPROMISSOR.

In the civil and Scotch law. A guarantor, surety, or caution- er; a peculiar species of fidejussor; one who adds his own promise to the promise given by the principal debtor, whence the name.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: Same verses as ACCESSORY CONTRACT: the entry is 'a guarantor, surety, or cautioner.' Scripture's standing warning on the surety — 'snared with the words of thy mouth.' Solomon speaking — flag off.

## ADQUIETO.

Payment. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## ADRECTARE.

To set right, satisfy, or make amends.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 19:8, KJV]**

And Zacchaeus stood, and said unto the Lord; Behold, Lord, the half of my goods I give to the poor; and if I have taken any thing from any man by false accusation, I restore him fourfold.

Why: The entry is 'to set right, satisfy, or make amends.' The verse is scripture's instance of making amends: Zacchaeus restoring fourfold what was taken — satisfaction made to the wronged. Zacchaeus speaking — flag off.

## ADRHAMIRE.

In old European law. To undertake, declare, or promise solemnly; to pledge ; to pledge

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one’s self to make oath. Siielman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: Same verse as ADJURATION: the entry is 'to undertake, declare, or promise solemnly; to pledge.' The verse states the binding force of the solemn pledge — 'he shall not break his word.' Flagged deity-verbatim as God's...

## ADRIFT.

Sea-weed, between high and low water-mark, which hns not been deposit- ed on tlie shore, and which during flood-tide Is moved by each rising and receding wave, is adrift , although the bottom of the mass may touch the beach. Anthony v. Gifford, 2 Allen (Mass.) 549.

5e apparatus — Not carried into the 5th edition (1979).

## ADROGATION.

In the civil law. The adoption of one who was impubes; that is, if a male, under fourteen years of age; If a female, under twelve. Dig. 1, 7, 17, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:15, KJV]**

For ye have not received the spirit of bondage again to fear; but ye have received the Spirit of adoption, whereby we cry, Abba, Father.

Why: Same verse as ADOPTION: the entry is adoption in its Roman-law form (of one under puberty). The verse gives scripture's use of the adoption concept — receiving sonship, 'Abba, Father.' Paul speaking — flag off.

## ADS.

An abbreviation for ad sertam, which means “at the suit of.” Bowen v. Sewing Mach. Co., 86 111. 11.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## ADVANCEMENT.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 15:12, KJV]**

And the younger of them said to his father, Father, give me the portion of goods that falleth to me. And he divided unto them his living.

Why: The entry is property given by a father to his child 'by way of anticipation of the share which the child will inherit.' The verse is the parable's instance: the younger son taking his portion in advance — 'give me th...

## ADSCENDENTES.

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Lat In the civU law. Ascendants. Dig. 23, 2, 68; Cod. 5, 5, 6.

AD8CRIPTI GLEB/E. Stares who served the master of the soil, who were an- nexed to the land, and passed with it when it was conveyed. Calvin.

In Scotland, as late as the reign of George III., laborers in collieries and salt works were ■bound to the coal-pit or salt work in which they were engaged, in a manner similar to that of the adscript* of the Romans. -Bell.

5e apparatus — Not carried into the 5th edition (1979).

## ADSCRIPTUS.

In the civil law. Add- ed. annexed, or bound by or in writing; en- rolled. registered ; united, joined, annexed, bound to, generally. Scrvus colonas ad scrip- tns, a slave annexed to an estate as a culti- vator. Dig. 19, 2, 54, 2. Fundus adscrip- ts, an estate bound . to, or burdened with a duty. Cod. 11, 2, 3.

5e apparatus — Not carried into the 5th edition (1979).

## ADSESSORES.

Side judges. Assist- ants or advisers of the regular magistrates, or appointed as their substitutes in certain cases. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ADSTIFULATOR.

In Roman law. An accessory party to a promise, who received the same promise as his principal did, and could equally receive and exact payment; or he only stipulated for a part of that for which the principal stipulated, and then his rights were coextensive with the amount of his own stipulation. Sandars, Just Inst. (5th Ed.) 348.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: Same verses as ACCESSORY CONTRACT: the entry is 'an accessory party to a promise' — the surety-like stipulator. Scripture's warning on the surety's bond — 'snared with the words of thy mouth.' Solomon speaking — flag… [re-homed from 'ADSTIPULATOR' to 'ADSTIFULATOR' (OCR headword / parser-merge artifact)]

## ADULT.

In the civil law. A male infant who has attained the age of four- teen ; a female infant who has attained the age of twelve. Dom. Liv. Prel. tit 2, f 2, n. 8.

In the common law. One who has at- tained the legal age of majority, generally 21 years, though in some states women are legally “adults” at 18. Schenault v. State, 10 Tex. App. 410; George v. State, 11 Tex. App. 95; Wilson v. Lawrence, 70 Ark. 545, 69 S. W. 570.

5e apparatus — Carried into the 5th edition (1979).

## ADULTER.

Lat. One who corrupts ; one who seduces another man’s wife. Adul- ter solidoruM. A corruptor Of metals ; a counterfeiter. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

## ADULTERA.

In the civil law. An adulteress ; a woman guilty of adultery. Dig. 48, 5, 4, pr. ; Id. 48. 5, 15, 8.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

## ADULTERATION.

The act of corrupt- ing or debasing. The term is generally ap- plied to the act of mixing up with food or drink intended to be sold other matters of an inferior quality, and usually of a more or less deleterious quality. Grosveuor v. Duffy, 121 Mich. 220, 80 N. W. 19; Com. v. Hufnal, 185 Pa. 370. 39 Atl. 1052; People

T. West, 44 Hun (N. Y.) 102.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Isaiah 1:22, KJV]**

Thy silver is become dross, thy wine mixed with water.

Why: Same verse as ABATUDA, and here the fit is exact: the entry is 'mixing up with food or drink intended to be sold other matters of an inferior quality' — and the verse names 'thy wine mixed with water,' wine adulterati…

## ADULTERATOR.

Lat In the civil

law. A forger ; a counterfeiter. . Aifultera- tores monetw, counterfeiters of money. Dig. 48, 19, 16, 9. , i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ADULTERINE.

Begotten in an adulter- ous intercourse. In the. Roman, and canon law, adulterine bastards >yere -distinguished from such as were the issue of two unmar- ried persons, and the,

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fprrner were treated with more severity, not being., allowed the status of natural , children,,, and1 being, in- eligible to holy orders.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: The entry is the adulterine bastard's status — treated 'with more severity' in Roman and canon law. The verse is scripture's own rule on the bastard's status: exclusion 'even to his tenth generation.' Moses speaking —...

## ADULTERINE GUILDS.

' Traders act- ing as a corporation without a charter, and paying a fine anunal|ys/or permission to ex- ercise their usurped privileges. Smith, Wealth Nat. b. 1, c. 10. '

5e apparatus — Carried into the 5th edition (1979).

## ADULTERIUM.

A fine aneiently im-’ posed as a punishment for the commission of adultery.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

## ADULTEROUS BASTARDY.

Adul- terous bastards are those produced by an unlawful connection between two persons, who, at the time -when the child was con- ceived, were, either of them or both, con- nected by marriage with some other person. Civil Code La. art 182.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: Same verse as ADULTERINE: the entry defines the adulterous bastard; the verse states scripture's rule on the bastard's standing. Moses speaking — flag off.

## ADULTERY.

( Adultery Is the voluntary sexual intercourse of a married person with a jterson other than the offender’s husband pr wife. Civil Code Cal. g,93 ; 1 Rlsh. Mar. & Dlv. | 703,; Cook v. State, .11 Ga. 53,

Am. Dec. 410; State y. Mahan, 81 Iowa, 121, 46 N. W. 855;, Banks. v. State. 96 Ala.. 78, 11 South. 404.

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Adultery is the unlawful voluntary sexual intercourse of a married person with one of the opposite sex, and when the cripie is com- mitted between parties, pnly one of whom is married, both are guilty of adultery. Pen. Code Dqk. § 333.

It is to be observed, however, that in some bf the states it is held .that .this crime is com- mitted only when the woman is married to a third person, and the unlawful commerce of a married man with an unmarried woman, is not of the grade of adultery. In> some juris- dictions, also, a distinction is made between double and single adultery, ‘ the former being committed where both parties are married to other persons, the latter where one only is so married. State v. Fellows. 50 Wis. 65, 6 N.

VV. 239; State v. Searle. .56 Vt. 516; State v. Lash, 16 N. J. Law. 380. 32 Am. Dec. 397; Hood v. State, 56 Ind. 263. 26 Am. Rep. 21 ; State v. Connoway, Tapp. (Ohio) 90; State v. Weatherby, 43 Me. 258. 69 Am. Dec. 59; Hun- ter v. U. S., 1 Pin. (Wis.) 91, 39 Am. Dec. 277.

ADVANCE, v. To pay money or render other value before it Is due; or to furnish capital In aid of a projected enterprise, in expectation of return from it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

**[John 8:11, KJV]**

She said, No man, Lord. And Jesus said unto her, Neither do I condemn thee: go, and sin no more.

Why: Christ's word to the woman taken in adultery — 'go, and sin no more' — the offense named and remitted by the deity himself. Flagged deity-verbatim (Jesus speaking).

## ADVANCEMENT.

Money or property given by a father to his child or presump- tive heir, or expended by the former for the

latter’s benefit, by way of anticipation of the share which the child will inherit in the father's estate and intended to be deducted therefrom. It is the latter circumstance which differentiates an advancement from a gift or a loan. Grattan v. Grattan, 18 111. 167, 65 Am. Dec. 726; Berlnger v. Lutz, 188 Pa. 364, 41 AtL 643; Daugherty v. Rog- ers, 119 Ind. 254, 20 N. E. 779, 3 L. R. A. 847 ; Hattersley v. Bissett, 51 N. J. Eq. 597, 20 Atl. 187, 40 Am. St. Rep. 532; Chase v. Ewing, 51 Barb. (N. Y.) 597; Osgood v. Breed, 17 Mass. 356; Nicholas ▼. Nicholas, 100 Va. 660, 42 S. B. 069; Moore v. Free- man, 50 Ohio St 592, 35 N. E 502; Appeal of Porter, 94 Pa. 332 ; Blssell v. Blssell, 120 Iowa, 127, 94 N. W. 465; In re Allen’s Es- tate, 207 Pa. 325, 56 Atl. 928.

Advancement, in its legal acceptation, does not involve the idea of obligation or future lia- bility to answer. It is a pure and irrevocable gift made by a parent to a child in anticipa- tion of such child's future share of the parent's estate. Appeal of Yundt, 13 Pa. 580. 53 Am. Dec.

496. An advancement is any provision by a parent made to and accepted by a child out of his estate, either in money or property, during his life-time, over and above the obliga- tion of the parent for maintenance and educa- tion. Code Ga. 1882, $ 2579. An “advance- ment by portion,’’ within, the meaning of the statute, is a sum given by a parent to establish a child in life, (as by starting him in business,) or to make a provision for the child, las on the marriage of a daughter.) L. R. 20 Eq. 155.

5e apparatus — Carried into the 5th edition (1979).

## ADVANCES.

Moneys paid before or in advance of the proper time of payment; money or commodities furnished on credit; a loan or gift, or money advanced to be re- paid conditionally. Vail v. Vail, 10 Barb. (N. Y.) 69.

This word, when taken in its strict legal sense, does not mean gifts, (advancements,) and does mean a sort of loan; and, when taken in its ordinary and usual sense, it in- cludes both loans and gifts, — loans more readily, perhaps, than gifts. Nolan v. Bol- ton, 25 Ga. 355.

Payments advanced to the owner of prop- erty by a factor or broker on the price of goods which the latter has in bis hands, or is to receive, for sale. Laflln, etc., Powder Co. v. Burkhardt, 97 D. S. 110, 24 L. Ed. 973.

5e apparatus — Carried into the 5th edition (1979).

## ADVANTAGITTM.

In old pleading. An advantage. Co. Ent. 484 ; Townsh. Pl. 50.

5e apparatus — Not carried into the 5th edition (1979).

## ADVENA.

In Roman law. One of for- eign birth, who has left his own country and settled elsewhere, and who has not ac- quired citizenship in his new locality ; oft- en called albanus. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:34, KJV]**

But the stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

Why: The entry is the foreign-born resident settled without citizenship. The verse is the law of the resident stranger: 'the stranger that dwelleth with you shall be unto you as one born among you.' Flagged deity-verbatim…

## ADVENTITIOUS.

That which comes incidentally, fortuitously, or out of the regu- lar course. “Adventitious value” of lands, see Central R. Co. v'. State Board of As- sessors, 49 N. J. Law, 1, 7 Atl. 306.

5e apparatus — Not carried into the 5th edition (1979).

## ADVENTITIUS.

Lat Fortuitous; in- cidental; that which comes from an unus- ual source. Adventitia bona are goods which fall to a man otherwise than by in- heritance. Adventitia dot is a dowry or

portion given by some friend other than the parent.

5e apparatus — Not carried into the 5th edition (1979).

## ADVENTURA.

An adventure. 2 Mon. Angl. 615; Townsh. Pl. 50. Flotson, jet- son, and lagon are styled adventures marts, (adventures of the sea.) Hale, De Jure Mar. pt 1, c. 7.

5e apparatus — Not carried into the 5th edition (1979).

## ADVENTURE.

In mercantile law.

Sending goods abroad under charge of a su- percargo or other agent, at the risk of the sender, to be disposed of to the best advan- tage for the benefit of the owners.

The goods themselves so sent.

In marine Insurance. A very usual word in policies of marine insurance, and everywhere used as synonymous, or nearly so, with “perils.” It is often used by the writers to describe the enterprise or voyage as a "marine adventure” insured against. Moores v. Louisville Underwriters (C. C.) 14 Fed. 233.

— Adventure, bill of. In mercantile law. A writing signed by a merchant, stating that the property in goods shipped in his name be- longs to another, to the adventure or chance of which the person so named is to stand, with a covenant from the merchant to account to him for the produce.— Gross adventure. In mari- time law. A loan on bottomry. So named be- cause the lender, in case of a loss, or expense incurred for the common safety, must contribute to the gross or general average. — Joint adven- ture. A commercial or maritime enterprise undertaken by several persons jointly; a limit- ed partnership,— not limited in the statutory sense as to the liability of the partners, but as to its scope and duration. Ross v. Willett, 76 Hun, 211, 27 N. Y. Supp. 785.

5e apparatus — Carried into the 5th edition (1979).

## ADVERSARIA.

(From Lat. adverse, things remarked or ready at hand.) Rough memoranda, common-place books.

5e apparatus — Not carried into the 5th edition (1979).

## ADVERSARY.

A litigant-opponent, the opposite party in a writ or action.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: Same verse as ACCOMMODATION, here for the entry's own term: the 'adversary' is the litigation opponent — the opposite party who may 'deliver thee to the judge.' Christ's words — flagged deity-verbatim.

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## ADVERSARY PROCEEDING.

One

having opposing parties ; contested, as dis- tinguished from an ex parte application ; one of which the party seeking relief has given legal warning to the otHer party, and afforded the latter an opportunity to con- test it.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Audi alteram partem — hear the other side]**

An adversary proceeding is one in which the party seeking relief has given legal warning to the other party and afforded opportunity to contest it — the audi alteram partem principle.

Why: The entry's definition (notice plus opportunity to contest) is the procedural embodiment of the hear-the-other-side axiom of natural justice.

**[Scripture] — Scripture**

**[Deuteronomy 1:16, KJV]**

And I charged your judges at that time, saying, Hear the causes between your brethren, and judge righteously between every man and his brother, and the stranger that is with him.

Why: The entry is the contested proceeding — opposing parties heard, not ex parte. The verse charges the judges to 'hear the causes between your brethren' — both sides heard, judgment between them. Moses speaking — flag of...

## ADVENT.

A period of time recognized ADVERSE. Opposed; contrary; in re- by the English common and ecclesiastical sistance or opposition to a claim, applica- law, beginning on the .Sunday that falls el- tion, or proceeding.

ther upon St. Andrew’s day, being the 30th As to ndverse “Claim,” “Enjoyment,” of November, or the next to it. and coutinu- “Possession,” “User,” “Verdict,” “Witness,” Ing to Christinas day. Wharton. see those titles.

5e apparatus — Carried into the 5th edition (1979).

## ADVERSE PARTY.

An “adverse par- ty” entitled to notice of appeal Is every par- ty whose Interest In relation to the Judg- ment or decree appealed from Is In conflict with the modification or reversal sought by the appeal ; every party Interested In sus-, taining the judgment or decree, Harrigan v. Gilchrist, 121 Wis. 127. 99 N. W. 909; Moody v. Miller, 24 Or. 179, 33 Pac. 402; Mohr v. Byrne, *132 Oal. 250, 64 Pac. 257 ; Fitzgerald v. Cross, 30 Ohio St. 444; In re Clarke, 74 Minn. 8, 76 N. W. 790; Herrl- man v. Menzles. 115 Cal. 16. 44 Pac. 660, 35

L. R. A. 318, 56 Am. St. Rep. 81.

5e apparatus — Carried into the 5th edition (1979).

## ADVERSUS.

In the civil law. Against, (contra.) Adversus bonos mores, against good morals. Dig. 47, 10, 15.

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5e apparatus — Not carried into the 5th edition (1979).

## ADVERTISEMENT.

Notice given in a manner designed to attract public attention; Information communicated to the public, or to an Individual concerned, by means of handbills or the newspaper. Montford v. Allen, 111 Ga. 1& 36 S. E. 305; Ilaffner v. Barnard, 123 Ind. 429, 24 N. E. 152; Com. v. Johnson, 3 Pa. Diet. R. 222.

A sign-board, erected at a person’s place of business, giving notice that lottery tickets are for sale there, is an “advertisement," within the meaning of a statute prohibiting the advertis- ing of lotteries. In such connection the mean- ing of the word is not confined to notices print- ed in newspapers. Com. v. Hooper, 5 Pick. (MW) 42.

5e apparatus — Carried into the 5th edition (1979).

## ADVERTISEMENTS OF QUEEN / ELIZABETH.

Certain articles or ordi- nances drawn up by Archbishop Parker and some of the bishops in 1564, at the request of Queen Elizabeth, the object of which was to enforce decency and uniformity In the ritual of the church. The queen subsequent- ly refused to give her official sanction to these advertisements, and left them to bq enforced by the bishops under their general powers. Phillim. Ecc. Luw, 910; 2 Prob. Div. 276; Id. 354.

5e apparatus — Not carried into the 5th edition (1979).

## ADVICE.

View ; opinion ; the counsel given by lawyers to their clients; an opin- ion expressed as to wisdom of future con- duct.

The Instruction usually given by one mer- chant or banker to another by letter, In- forming him of shipments made to him, or of bills or drafts drawn on him, with par- ticulars of date, or sight, the sum, and the payee. Bills presented for acceptance or jiayment are frequently dishonored for want of advice.

—tetter of advice. A communication from one person to another, advising or warning the latter of something which he ought to know, and commonly apprising him beforehand of some act done by the writer which will ultimately af- fect the recipient. It is usual nnd perfectly proper for the drawer of a bill of exchange to write a letter of advice to the drawee, as well to prevent fraud or alteration of the bill, as to let the drawee know what provision has been made for the payment of the Mil. Chit Bills, 162.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:14, KJV]**

Where no counsel is, the people fall: but in the multitude of counsellors there is safety.

Why: The entry is 'the counsel given by lawyers to their clients; an opinion expressed as to wisdom of future conduct.' The verse is scripture's maxim on counsel: safety 'in the multitude of counsellors.' Solomon speaking…

## AD VIS ARE, ADVI8ARI.

Eat To

consult, deliberate, consider, advise; to be advised. Occurring In the phrase curia ad- visari vult, (usually abbreviated cur. adv. vult , or C. A. V.,) the court wishes to be ad- vised, or to consider of the matter.

5e apparatus — Not carried into the 5th edition (1979).

## ADVISE.

To give an opinion or counsel, or recommend a plan or course of action; also to give notice. Long ▼. State, 23 Neb. 33, 36 N. W. 310.

This term is not synonymous with “direct” or “instruct.” Where a statute authorizes the trial court to advise the jury to acquit, the court has no power to instruct the jury to acquit. The court can only counsel, and the jury are not bound by the advice. People v. Horn, 70 Cal. 17, 11 Pac. 470.

5e apparatus — Carried into the 5th edition (1979).

## ADVISED.

Prepared to give judgment, after examination and deliberation. “The court took time to be advised.” 1 Leon. 187.

5e apparatus — Carried into the 5th edition (1979).

## ADVISEMENT.

Deliberation, consider- ation, consultation ; the consultation of a court, after the argument of a cause by counsel, and before delivering their opinion. Clark v. Read, 5 N. J. Law, 486.

5e apparatus — Carried into the 5th edition (1979).

## ADVISORY.

Counselling, suggesting, or advising, but not imperative. A verdict on an Issue out of chancery is advisory. Watt v. Starke, 101 U. S. 252, 25 L. Ed. ^26.

5e apparatus — Carried into the 5th edition (1979).

## ADVOOARE.

Lat To defend; to call to one’s aid; to vouch; to warrant.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOCA8SIE.

L. Fr. The office of an advocate: advocacy. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOCATA.

In old English law. A patroness; a woman who had the right of presenting to a church. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOCATE.

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One who assists, defends, or pleads for another; one who renders le- gal advice and aid and pleads the cause of another before a court.

A person learned in the law, and duly ad- mitted to practice, who assists his client with advice, and pleads for him in open court Holthouse.

The College or Faculty of Advocates is a corporate body in Scotland, consisting of the members of the bar in Edinburgh. A large portion of its members are not active practitioners, however. 2 Bankt Inst. 486.

In the civil and ecclesiastical law.

An officer of the court learned in the law, who is engaged by a suitor to maintain or defend his cause.

—Advocate general. The adviser of the crown in England on questions of naval and military law.— Advocate, lord. The principal crown, lawyer in Scotland, and one of the great officers of state of Scotland. It is his duty to act as public prosecutor; but private individ- uals injured may prosecute upon obtaining bis concurrence. He is assisted by a solicitor gen- eral and four junior counsel, termed “advo- cates-depute.” He has the power of appearing

^DIFICARE IN TUO

as public prosecutor in any court in Scotland, where any person can be tried for an offense, or in any action where the crown is interested. Wharton.— Advocate, Queen’s. A member of the College of Advocates, appointed by letters patent, whose office is to advise and act as coun- sel for the crown in questions of civil, canon, and International law. His rank is next after the solicitor general.

ADVOCATI ECCLESIiE. A term used In the ecclesiastical law’ to denote the i»a- trons of churches who presented to the liv- ing on an avoidance. This term was also applied to those who were retained to ar- gue the cases of the church.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — "to have the Assistance of Counsel for his defence"]**

The advocate — one who pleads the cause of another — is the institutional embodiment of the accused's right "to have the Assistance of Counsel for his defence."

Why: The entry defines the advocate's office; the Sixth Amendment states the constitutional guarantee that office serves, quoted verbatim.

**[Scripture] — Scripture**

**[1 John 2:1, KJV]**

My little children, these things write I unto you, that ye sin not. And if any man sin, we have an advocate with the Father, Jesus Christ the righteous:

Why: The entry is 'one who assists, defends, or pleads for another... and pleads the cause of another.' The verse names the Advocate who pleads for another — 'an advocate with the Father.' John speaking — flag off.

## ADT OC ATI A.

In the civil law. The quality, function, privilege, or territorial Jurisdiction of an advocate.

5e apparatus — Not carried into the 5th edition (1979).

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## ADVOCATION.

In Scotch law. A pro- cess by which an action may be cnrrled from an inferior to a superior court before final Judgment In the former.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOCATIONE DECIMARTJM.

A

writ which lay for tithes, demanding the fourth part or upwards, that belonged to any church.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: The entry is the writ for tithes — the church's due. The verse commands bringing 'all the tithes into the storehouse' — 'saith the LORD of hosts,' first-person divine speech ('prove me now herewith'). Flagged deity-ve… [re-homed from 'ADVOCATIONE DECIMARUM' to 'ADVOCATIONE DECIMARTJM' (OCR headword / parser-merge artifact)]

## ADVOCATOR.

In told practice. One

who called on or vouched another to war- rant a. tijle; a voucher. Advocatus; the person called on, or vouched; a vouchee. Spelman ; Townsh. Pl. 45.

In Scotch practice. An appellant. 1 Broun, R. 07.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOCATE'S.

In the civil law. An

advocate: one who managed or assisted in managing another’s cause before a Judicial tribunal. Called also “patronm." Cod. 2, 7, 14. But distinguished from caustdicm. Id. 2, 6, 0.

Advocatus diaboli. In ecclesiastical law.

The devil’s advocate; the advocate who argues against the canonisation of a saint.— Advocati fled. In the civil law. Advocates of the fisc, or revenue; fiscal advocates, ( qui causam fisrt egissent.) Cod. 2. 0. 1 : Id. 2. 7, 13. Answer- ing. in some measure, to the king’s couusel in English law. 3 Bl. Comm. 27.

the man with whom she committed the adul- tery. Cowed ; Termes de la Ley. Some- times spelled “advowtry.”

ADVOWEE, or AVOWEE. The per- son or patron who has a right to present to a lieneflce. Fletu, lib. 5, c. 14.

— Advowee paramount. The sovereign, or highest patron.

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5e apparatus — Not carried into the 5th edition (1979).

## ADVOWSON.

In English ecclesiastical law. Tlie right of presentation to a church or ecclesiastical benefice; the right of pre- senting a fit person to the bishop, to be by him admitted and instituted to a certain

benefice within the diocese, which has be- come vacant. 2 Bl. Comm. 21 ; Co. Litt. 1196, 120a. The person enjoying this right is called the “patron” (patron us) of the church, and was formerly termed “ail coca- tus" the advocate or defender, or in Eng- lish, “advowee." Id.; 1 Crabb, Real Prop, p. 129, § 117.

Advowsons are of the following several kinds, viz.:

— Advowion appendant. An advowson an- nexed to a manor, and passing with it, aa in- cident or appendant to it, by a grant of the manor only, without adding any other words.

2 Bl. Comm. 22; Co. Litt. 120. 121; 1 Crabb, Real Prop. p. 130, § 1 1 8.— Advowson collar tire. Where the bishop happens himself to lie the patron, in which case (presentation being impossible, or unnecessary) lig does by one act, which is termed “collation.” or conferring the benefice, all that is usually done by the separate acts of presentation and institution. 2 Bl. Comm. 22. 23 ; 1 Crabb, Real Prop. p. 131, § 119. — Advowson donative. Where the pa- tron has the right to put liis clerk in possession by his mere gift, or deed of donation, with- out any presentation to the bishop, or institu- tion by him. 2 Bl. Comm. 23 ; 1 Crabb, Real Prop. p. 131, 8 119.— Advowson in gross. An advowson separated from the manor, and annexed to the person. 2 Bl. Comm. 22 ; Co. Litt. 120; 1 Crabb. Real Prop. p. 130, 8 118;

3 Steph. Comm. 110.— Advowson presenta- tive. The usual kind of advowson. where the patron has the right of presentation to the bish- op, or ordinary, and moreover to demand of him to institute his clerk, if he finds him canon- ically qualified. 2 Bl. Comm. 22 ; 1 Crabb, Real Prop. p. 131, 8 110.

5e apparatus — Carried into the 5th edition (1979).

## ADVOWTRT.

See Advoutbt.

Advocatus est, ad quem pertinet jus advocationis alicujus ecclesise, nt ad ee- clesiam, nomine - proprio, non alieno, possit praesentare. A patron Is he to whom appertains the right of presentation to a church, In such a manner that he may pre- sent to such a .church In his own name, and not in the name of another. Co. Litt. 119.

5e apparatus — Not carried into the 5th edition (1979).

## ADVOUTRER.

In old English law. An adulterer. Beaty v. Richardson, 56 S. C. 175, 34 S. E. 73. 40 L. R. A. 517.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

## ADVOUTRY.

In old English law. Adultery between parties both of whom were married. Ilunter v. U.’ S., 1 Pin. (Wis.) 91, 39 Am. Dec. 277. Or the offense by an adulteress of continuing to live with

iEDES. Lat. In the civil law. A house, dwelling, place of habitation, whether in the city or country. Dig. 30. 41, 5. In the coun- try everything upon the surface of the soil passed under the term “cede*." Du Cauge ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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Why: The Decalogue's own prohibition — God's spoken 'Thou shalt not commit adultery,' the scriptural root of the offense. Flagged deity-verbatim (first-person divine command).

# J

## JEDIFICARE.

Lat. Iu civil and old English law. To make or build a house; to erect a building. Dig. 45. 1, 75. 7.

JEdifioare in tuo proprio solo non lieet quod alter! noeeat* 3 Inst. 201. To build upon your own land what may injure an- other is not lawful. A proprietor of land has no right to erect an edifice on his own ground, interfering with the due eujoyment of adjoining premises, as by overhanging

2EDIFICATUM SOLO

2ESNECIA

them, or by throwing water from the roof and eaves upon them, or by obstructing an- cient lights and windows. Broom, Max. 369.

Adifloatua solo solo ©edit. What is built upon land belongs to or goes with land. Broom, Max. 172; Co. Litt. 4a.

JEdifiela solo cedant. Buildings belong to [go with] the 'soil. Fleta, lib. 3, c. 2, § 12.

iEDILE. In Roman law. An officer who attended to the repairs of the temples and other public buildings; the repairs and clean- liness of the streets; the care of the weights and measures; the providing for funerals and games; and regulating the prices of provi- sions. Alnsw. Lex.; Smith, Lex.; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Aedificare in tuo proprio solo non licet quod alteri noceat — 3 Inst. 201, as quoted in the entry]**

"To build upon your own land what may injure another is not lawful" — a proprietor has no right to erect on his own ground what interferes with the due enjoyment of adjoining premises.

Why: The entry quotes the maxim verbatim with Broom's exposition; it is the building-specific form of the sic-utere axiom.

**[Maxim: Aedificatum solo solo cedit — Broom, Max. 172; Co. Litt. 4a, as quoted in the entry]**

"What is built upon land belongs to or goes with the land."

Why: The entry quotes the maxim verbatim; it is the fixtures axiom — buildings pass with the soil.

**[Maxim: Aedificia solo cedant — Fleta, lib. 3, c. 2, § 12, as quoted in the entry]**

"Buildings belong to [go with] the soil."

Why: The entry quotes the maxim verbatim; the companion form of the soil-fixture axiom.

## JEDELITUM EDICTUM.

In the Roman law. The JEdilltian Edict; an edict provid- ing remedies for frauds in sales, the execu- tion of which belonged to the curule aediles. Dig. 21. 1. See Cod. 4, 58.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:23, KJV]**

Divers weights are an abomination unto the LORD; and a false balance is not good.

Why: The entry is the edict 'providing remedies for frauds in sales.' The verse states scripture's condemnation of the fraudulent measure in trade — 'divers weights' and 'a false balance' — the very fraud the edict remedie... [re-homed from 'AEDILITUM EDICTUM' to 'JEDELITUM EDICTUM' (OCR headword / parser-merge artifact)]

## JEFESN.

In old English law. The re- muneration to the proprietor of a domain for the privilege of feeding swine under the oaks and beeches of his woods.

2EGROTO. Lat. Being sick or indispos- ed. A term used In some of the older re- ports. “Holt wgroto.” 11 Mod. 179.

5e apparatus — Not carried into the 5th edition (1979).

## JEGYXJDE.

Uncompensated, unpaid for, unavenged. From the participle of exclu- sion, a, w, or ear, (Goth.,) and gild, payment, requital. Anc. Inst. Eng.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XL.

A Norman French term signifying “grandfather.” It is also spelled “aieul” and “ aylc .” Kelham.

Eqnior eat dispositio legis quam ho mi- nis. The disposition of the law is more equitable than that of man. 8 Coke, 152.

2EQTTITAS. In the civil law. Equity, as opposed to strictum or summum jus, (q. v.) Otherwise called wquum, wquum bonum, wquum et bonum, wquum et justum. Cal- vin.

Xqnitaa agit in personam. Equity acts upon the person. 4 Bouv. Inst. n. 3733.

JEquitas est correctio leads generallter lata, qua parte deficit. Equity Is the cor- rection of that wherein the law, by reason of its generality, is deficient Plowd. 375.

JEquitas est correctio quae dam leg! ad- hibita, quia ab eft abest allquid propter generaleen sine exceptions comprehenaionem. Equity is a certain correction ap- plied to law, because on account of its general comprehensiveness, without an exception, something is absent from it, Plowd. 467.

JEquitas est perfects quae dam ratio qnae jus scriptum interpre tatur et emeu- da t; nulla scriptnra comprehensa, sed solum in ver& ratione consistens. Equity is a certain perfect reason, which interprets and amends the written law, comprehended in no. writing, but consisting in right reason alone. Co. Litt. 246.

JEqnitaa est quasi aequalitas. Equity is as it were equality; equity is a species of equality or equalization. Co. Litt. 24.

JEquitas ignorantiae opitulatur, osci- tantiae non item. Equity assists ignorance, but not carelessness.

JEquitas non faeit jus, sed juri a axil- la tur. Equity does not make law, but as- sists law.. LoBt, 379.

JEquitas nunquam contravenit leges.

Equity never counteracts the laws.

JEquitas sequitur legem. Equity fol- lows the law. Gilb. 186.

JEquitas supervaeua odit. Equity ab- hors superfluous things. Lofft, 282.

JEquitas nxorlbus, liberis, creditoribuq maxima favet. Equity favors wives and children, creditors most of all.

Equum et bonum est lex legum. What is equitable and good is the law of laws. Hob. 224.

JEQUtJS. Lat Equal; even. A provi- sion in a will for the division of the residu- ary estate ess wquus among the legntees means equally or evenly. Archer v. Morris, 61 N.

J. Eq. 152, 47 Atl. 275.

JERA, or ERA. A fixed point of chron- ological time, whence any number of years is counted; thus, the Christian era began at the birth of Christ, and the Mohammedan era at the flight of Mohammed from Mecca to Medina. The derivation of the word has been much contested. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Aequior est dispositio legis quam hominis — 8 Coke, 152, as quoted in the entry]**

"The disposition of the law is more equitable than that of man."

Why: The body carries the merged AEQUITAS entry; the maxim is quoted verbatim and is a genuine equity axiom, annotated here under the headword as printed with the merge stated.

**[Maxim: Aequitas agit in personam — 4 Bouv. Inst. n. 3733, as quoted in the entry]**

"Equity acts upon the person."

Why: Same merged AEQUITAS body; the maxim states equity's in personam operation, quoted verbatim.

**[Maxim: Aequitas est correctio legis generaliter latae, qua parte deficit — Plowd. 375, as quoted in the entry]**

"Equity is the correction of that wherein the law, by reason of its generality, is deficient."

Why: Same merged AEQUITAS body; the classical definition of equity's office, quoted verbatim.

# J

## JERARIUM.

Lat In the Roman law. The treasury, (flscus.) Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## JES.

Lat. In the Roman law. Money, (literally, brass;) metallic money in general, including gold. Dig. 9, 2, 2, pr.; Id, 9, 2, 27, 5; Id. 50, 16, 159.

— JEs alienum. A civil law term signifying a debt; the property of another; borrowed money, as distinguished from wt suum, one's own money.— JEs suum. One’s own money. In the Roman law. Debt ; a debt ; that which others owe to us, (quod alti nobis dcbcnt.) Dig. 50, 16, 213.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:8, KJV]**

Owe no man any thing, but to love one another: for he that loveth another hath fulfilled the law.

Why: The entry defines aes alienum — a debt, 'borrowed money.' The verse states the scriptural rule of debt: 'owe no man any thing' — the duty not to stand indebted. Paul speaking — flag off. Modest. [re-homed from 'AES' to 'JES' (OCR headword / parser-merge artifact)]

## JESNECIA.

In old English law. Es- necy; the right or privilege of the eldest

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born. Spelman; Glanv. lib. 7, c. 3; Fleta, lib. 2, c. 00, |§ 5, 0.

5e apparatus — Not carried into the 5th edition (1979).

# A

## ABSTIMATIO CAPITIS.

In Saxon law. The estimation or valuation of the head ; the price or value of a man. By the laws of Atbelstan, the life of every man not except- ing that of the king himself, was estimated at a certain price, which was called the were, or watimatio capitis. Crabb, Eng. Law, c. 4.

•Kstiniatio preterit! delicti ez post- remo facto nunquam cresoit. The weight of a past offense Is never increased by a sub- sequent fact. Bacon.

iETAS. Lat. In the civil law. Age.

— JEtas infan tie prozima. The age next

to infancy ; the first half of the period of child- hood, ( pueritia ,) extending from seven years to ten and a half. Inst. 3, 20. 9 ; 4 Bl. Comm. 22. — /Etas legitima. Lawful age ; the age of twenty-five. Dig. 3. 5. 27. pr. : Id. 26, 2, 32, 2 ; Id. 27, 7, 1, pr. — JEtaa perfeeta. Complete age ; full age ; the age of twenty-five. Dig. 4, 4, 32; Id. 22. 3, 25, 1.— ABtaa prim*. The first age; infancy, ( infantia .) Cod. 6, 61, 8, 3. — JEtaa pnbertati prozima. The age next to puberty ; the last half of the period of child- hood. (pueritia,) extending from ten years and a haif to fourteen. Inst. 3, 20, 9; 4 Bl. Comm. 22.

.STATE PROBANDA. A writ which inquired whether the king's tenant holdtng In chief by chivalry was of full age to receive his lands. It was directed to the escheater of the county. Now disused.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Aestimatio praeteriti delicti ex postremo facto nunquam crescit — Bacon, as quoted in the entry]**

"The weight of a past offense is never increased by a subsequent fact."

Why: The entry quotes the maxim verbatim; it is the genuine axiom against retroactive aggravation of offenses.

**[Scripture] — Scripture**

**[Exodus 21:30, KJV]**

If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him.

Why: The entry is the wergild — 'the price or value of a man,' the estimation of the head. The verse sets the monetary 'ransom of his life' — the price laid upon a man's life, to be paid. Flagged deity-verbatim as God's sp... [re-homed from 'AESTIMATIO CAPITIS' to 'ABSTIMATIO CAPITIS' (OCR headword / parser-merge artifact)]

**[Humanity] — Humanity / Fiction & Film**

**[Anon., Beowulf, c. 1000]**

Humanity (paraphrase): Hrothgar tells Beowulf he once settled Ecgtheow's feud by paying weregild to the Wulfings — the poem itself prices a man's life. (paraphrase)

Why: The entry defines the aestimatio/weregild as 'the price or value of a man.' Beowulf's weregild episode dramatizes the exact legal mechanism (a set pecuniary price for a slain man, paid to end a feud), illuminating the...

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# S

## STHELIWO.

In Saxon law. A noble; generally a prince of the blood.

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# A

## AFFAIRS.

A person’s concerns in trade or property; business. Montgomery v. Com., 91 Pa. 133; Bragaw v. Bolles, 51 N. J. Eq. 84, 25 Atl. 947.

5e apparatus — Carried into the 5th edition (1979).

## AFFECT.

To act upon ; influence ; change ; enlarge or abridge. This word Is often used in the sense of acting Injuriously upon per- sons and things. Ryan v. Carter, 93 U. S. 84, 23 L. Ed. 807; Tyler v. Wells, 2 Mo. App. 538; Holland v. Dickerson, 41 Iowa, 373; United States v. Ortega, 11 Wheat. 467, 6 L. Ed. 521.

Affectio tna nomen imponit operi too.

Tour disposition (or intention) gives name (or character) to your work or act. Bract, fol. 26, 1016.

5e apparatus — Carried into the 5th edition (1979).

## AFFECTION.

The making over, pawn- ing, or mortgaging a thing to assure the pay- ment of a sum of money, or the discharge of some other duty or service. Crabb, Technol. Diet.

5e apparatus — Carried into the 5th edition (1979).

## AFFECTUS.

Disposition; Intention, im- pulse or affection of the mind. One of the causes for a challenge of a juror is propter

affectum, on account of a suspicion of Mat or favor. 3 Bl. Comm. 363 ; Co. Litt. 156.

AJTectn* pnnitnr licet non seqnatnr effeotna. The intention is punished although the Intended result does not follow. 9 Coke, 55.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Affectus punitur licet non sequatur effectus — 9 Coke, 55, as quoted in the entry]**

"The intention is punished although the intended result does not follow."

Why: The entry quotes the maxim verbatim; it is the genuine axiom behind attempt and inchoate liability.

**[Scripture] — Scripture**

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**[Matthew 5:28, KJV]**

But I say unto you, That whosoever looketh on a woman to lust after her hath committed adultery with her already in his heart.

Why: The entry quotes the maxim 'affectus punitur licet non sequatur effectus' — the intention punished though the result never follows. The verse treats the intention as the offense itself: lust 'in his heart' is adultery...

## AFFEER.

To assess, liquidate, appraise, fix in amount.

To affeer an amercement. To establish the amount which one amerced In a court- leet should pay.

To affeer an account. To confirm it on oath in the exchequer. Cowell; Blount; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AFFEERORS.

Persons who, in court- leets, upon oath, settle and moderate the fines and amercements Imposed on those who have committed offenses arbitrarily punishable, or that have no express penalty appointed by statute. They are also appointed to moder- ate fines, etc., in courts-baron. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AFFERMER.

L. Fr. To let to farm. Also to make sure, to establish or confirm. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIANCE.

A plighting of troth be- tween man and woman. Litt | 39. An agreement by which a man or woman prom- ise each other that they will marry together. Potb. Traitfl du Mar. n. 24.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hosea 2:19, KJV]**

And I will betroth thee unto me for ever; yea, I will betroth thee unto me in righteousness, and in judgment, and in lovingkindness, and in mercies.

Why: The entry is the plighting of troth — the agreement to marry. The verse gives the betrothal in God's own first-person speech: 'I will betroth thee unto me for ever.' Flagged deity-verbatim.

## AFFIANT.

The person who makes and subscribes hn affidavit. The word is used, in this sense, interchangeably with "depo- nent” But the latter term should be re- served as the designation of one who makes a deposition.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIDARE.

To swear faith to ; to pledge one's faith or do fealty by making oath. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## AFF1DARI.

To be mustered and en- rolled for soldiers upon an oath of fidelity.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIDATIO.

A swearing of the oath of fidelity or of fealty to one’s lord, under whose protection the qnasi-vassal has voluntarily come. Brown.

AFFIDATIO DOMINORtnf. An oath

taken by the lords in parliament

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AFFIDATU8.

One who is not a vassal, but who for the sake of protection has con- nected himself with one more powerful. Spelman ; 2 Bl. Comm. 46.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIDAVIT.

A written or printed dec- laration or statement of facts, made volun- tarily, and confirmed by the oath or affirma- tion of the. party making it taken before an officer having authority to administer such oath. Oox v. Stern, 170 111. 442, 48 N. E.

906, 62 Am. St Rep. 383; Hays v. Loomis, 84 111. 18.

An affidavit is a written declaration under oath, made without notice to the adverse par- ty. Code Civ. Proc. Cal. § 2003; Code Civ. l*roc. Dak. { 464.

An affidavit is an oath in writing, sworn be- fore and attested by him who hath authority to administer the same. Knapp v. Duclo, 1 Mich. N. P. 189.

An affidavit is always taken ex parte, aqd in this respect it is distinguished from a depo- sition, the matter of which is elicited by ques- tions. and which affords an opportunity for cross-examination. In re Liter’s Estate, 19 Mont. 474, 48 Pac. 753.

— Affidavit of defense. An affidavit stating that the defendant has a good defense to the plaintiff's action on the merits of the case.— Affidavit of merits. One setting forth that the defendant has a meritorious defense (sub- stantial and not technical) and stating the facts constituting the same. Palmer v. Rogers, 70 Iowa, 381, 30 N. W. 645.— Affidavit of servlee. An affidavit intended to certify the service of a writ, notice, or other document.— Affidavit to hold to hall. An affidavit made to procure the arrest of the defendant in a civil action.

5e apparatus — Not carried into the 5th edition (1979).

## AFFILARE.

L. Lat To file or affile. Affile tur, let It be filed. 8 Coke, 160. De re- cords affilatum, affiled of record. 2 Ld. Kaym. 1476.

5e apparatus — Not carried into the 5th edition (1979).

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## AFFILE.

A term employed In old prac- tice, signifying to put on file. 2 Muule & S. 202. In modern usage it is contracted to file.

5e apparatus — Not carried into the 5th edition (1979).

## AFFILIATION.

The fixing any one with the paternity of a bastard child, and the obligation to maintain It

In French law. A species of adoption which exists by custom in some parts of France. The person affiliated succeeded equally with other heirs to the property ac- quired by the deceased to whom he had been affiliated, but not to that which he inherited. Bouvier.

In eoelesiastioal law. A condition which prevented the superior from removing the person affiliated to another convent. Guyot, Report

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AFFINAGE.

A refining of metals. Blount

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:3, KJV]**

And he shall sit as a refiner and purifier of silver: and he shall purify the sons of Levi, and purge them as gold and silver, that they may offer unto the LORD an offering in righteousness.

Why: The entry is 'a refining of metals.' The verse describes the refiner's craft — sitting 'as a refiner and purifier of silver,' purging 'as gold and silver' — scripture's image of the refining work. Malachi speaking — f...

## AFFINES.

In the civil law. Connections by marriage, whether of the persons or their relatives. Calvin.

Neighbors, who own or occupy adjoining lands. Dig. 10, 1, 12.

Affinls mei afflnis non eat mihi af- flnis. One who is related by marriage to a person related to me by marriage has no affinity to me. Shelf. Mar. & DIv. 174.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Affinis mei affinis non est mihi affinis — Shelf. Mar. & Div. 174, as quoted in the entry]**

"One who is related by marriage to a person related to me by marriage has no affinity to me."

Why: The entry quotes the maxim verbatim; it is the genuine axiom delimiting affinity — affinity does not propagate through successive marriages.

## AFFINITAS.

Lat In the civil law. Af- finity; relationship by marriage. Inst 1, 10, 6.

— Affinltas affinltatis. Remote relationship by marriage. That connection between parties

arising from marriage which is neither consan- guinity nor affinity. Chinn v. State, 47 Ohio

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St. 575, 26 N. E. 986, 11 L. R. A. 630.

5e apparatus — Not carried into the 5th edition (1979).

## AFFINITY.

At common law. Rela- tionship by marriage between the husband and the blood relations of the wife, and be- tween the wife and the blood relations of the husband. 1 Bl. Comm. 434 ; Sollnger v. Earle, 45 N. Y. Super. Ct 80; Tegarden ▼. Phillips (Ind. App.) 39 N. E. 212.

Affinity is distinguished into three kinds: (1) Direct, or that subsisting between the husband and his wife's relations by blood, or between the wife and the husband's relations by blood; (2) secondary, or that which subsists between the husband and his wife's relations by mar- riage; (3) collateral, or that which subsists be- tween the husband and the relations of Ms wife's relations. Wharton.

In the civil law. The connection which arises by marriage between each person of the married pair and the kindred of the other. Mackeld. Rom. Law, f 147 ; Poy- dras v. Livingston, -5 Mart. O. S. (La.) 295. A husband is related by affinity to all the consanguinei of his wife, and vice versa, the wife to the husband's consanguinei ; for the husband and wife being considered one flesh, • those who are related to the one by blood are related to the other by affinity. Gib. Cod. 412; 1 Bl. Comm. 435.

In a larger sense, consanguinity or kin- dred. Co. Lltt. 157a.

—Quasi affinity. In the civil law. The af- finity which exists between two persons, one of whom has been betrothed to a kinsman of the other, but who have never been married.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIRM.

To ratify, make firm, confirm, establish, reassert.

To ratify or confirm a former law or Judg- ment Cowell.

In the practice of appellate courts, to a/firm a Judgment decree, or order, is to declare that it is valid and right and must stand as rendered below ; to ratify and reassert it; to concur in Its correctness and confirm Its effi- cacy.

In pleading. To allege or aver a mat- ter of fact; to state It affirmatively; the opposite of deny or traverse.

In practice. To make affirmation; to make a solemn and formal declaration or as- severation that an affidavit is true, that the witness will tell the truth, etc., this being substituted for an oath In certain cases. Also, to give testimony on affirmation.

In the law of contracts. A party is said to affirm a contract, the same being voidable at his election, when he ratifies and accepts It, waives his right to annul it, and proceeds under it as if It had been valid originally.

5e apparatus — Carried into the 5th edition (1979).

## AFFIRMANCE.

In practice. The con- firming, or ratifying a former law, or Judg- ment. Cowell; Blount

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The confirmation and ratification by an ap-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## AFFRANCHISE.

pellate court of a judgment, order, or decree of a lower court brought before It for review. See Affibm.

A dismissal of an appeal for want of pros- ecution is not au “affirmance’’ of the judg- ment Drummond v. Husson, 14 N. Y. <>0.

The ratification or confirmation of a void- able contract or act by tlie party who is to be bound thereby.

The term is in. accuracy to be distinguished from ratification, which is a recognition of the validity or binding force as against the party ratifying, of some act performed by another person ; and from confirmation, which would seem to apply more properly to cases where a doubtful authority has been exercised by an- other in behalf of the person ratifying ; but these distinctions are not generally observed with much care. Bouvier.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:2, KJV]**

If thou buy an Hebrew servant, six years he shall serve: and in the seventh he shall go out free for nothing.

Why: Same verse as AFFRANCHIR: the entry is 'to liberate; to make free.' The verse states the legal liberation — 'he shall go out free for nothing.' Flagged deity-verbatim (borderline; logged).

## AFFIRMANCE DAT GENERAL.

In

the English court of exchequer, Is a day ap- pointed by the judges of the common pleas, and burons of the exchequer, to be held a few days after the begiuniug of every term for the general affirmance or reversal of judg- ments. 2 Tldd, Pr. 1001.

5e apparatus — Not carried into the 5th edition (1979).

## AFFIRMANT.

A person who testifies on affirmation, or who affirms instead of taking an oath. See Affirmation. Used In affi- davits aud depositions which are a /finned, in- stead of sworn to in place of the word “de- IHHieut’’

Affirm antis eat probare. lie who af- firms must prove. Porter v. Stevens. 0 Cush. (Mass.) 535.

Affirmant!, non neganti Incnmbit pro- batlo. The [burden ofj proof lies upon him who affirms, not upon one who denies. Steph. PI. 84.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Affirmanti, non neganti incumbit probatio — Steph. Pl. 84, as quoted in the entry]**

"The burden of proof lies upon him who affirms, not upon one who denies."

Why: The entry quotes the maxim verbatim; it is the burden-of-proof axiom.

**[Maxim: Affirmanti est probare — Porter v. Stevens, 9 Cush. (Mass.) 535, as quoted in the entry]**

"He who affirms must prove."

Why: The entry quotes the maxim verbatim on the cited Massachusetts authority; the companion form of the burden axiom.

## AFFIRMATION.

In practice. A solemn and formal declaration or asseveration that an affidavit Is true, that the witness will tell the truth, etc., this being substituted for an oath In certain cases.

A solemn religious asseveration In the nat- ure of an oath. 1 Greenl. Ev. § 371.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:37, KJV]**

But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: The entry is the solemn declaration 'substituted for an oath.' The verse gives the plain affirmation in place of swearing — 'let your communication be, Yea, yea; Nay, nay.' Christ's words — flagged deity-verbatim.

## AFFIRMATIVE.

That which declares positively; that which avers a fact to be true; that which establishes; the opposite of negative.

The party who, upon the allegations of plead- ings joining issue, is under the obligation of making proof, in the first instance, of matters alleged, is said to hold the affirmative, or, in other words, to sustain the burden of proof. Abbott.

As to affirmative “Damages,” "Pleas,” “Warranties,” see those titles.

— Affirmative defense. In code pleading. New matter constituting a defense ; new mat- ter which, assuming the complaint to-be true, constitutes a defense to it. Carter v. Eighth Ward Bank, 33 Misc. Rep. 128. Ii7 N. Y. Supp. 300. — Affirmative pregnant. In pleading. An affirmative allegation implying some negative in favor of the adverse party. Fields ▼. State, 134 Ind. 46, 32 N. E. 780.— Affirmative relief. Relief, benefit, or compensation which may be granted to the defendant in a judgment or decree in accordance with the facts estab- lished in his favor; such as may properly be given within the issues made by the pleadings or according to the legal or equitable rights of the parties as established by the evidence. Gar- ner v. Hannah, 6 Duer (N. Y.) 262. — Affirma- tive statute. In legislation. A statute couch- ed in affirmative or mandatory terms; one which directs the doing of an act. or declares what shall be done ; as a negative statute is one which prohibits a thing from being done, or declares what shall not be done. Blackstone describes affirmative acts of parliament as those “wherein justice is directed to be done accord- ing to the law of the land.” 1 Bl. Comm. 142.

5e apparatus — Carried into the 5th edition (1979).

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## AFFIX.

To fix or fasten upon, to attach to, inscribe, or impress upon, ns a signature, a seal, a trade-mark. Pen. Code N. Y. { 367. To attach, add to, or fasten upon, per- manently, ns in the case of fixtures aunexed to real estate.

A thing is deemed to be affixed to land when it is attached to it by the roots, as in the case of trees, vines, or shrubs ; or imbedded in it, as in the case of walls ; or permanent- ly resting upon it, as in the case of build- ings; or permanently attached to what is thus permanent, as by means of cement, plaster, nails, bolts, or screws. Civ. Code Cal. I 660; Civ. Code Mont. 1805. 4 107(1 ; McNally v. Con- nolly, 70 Cal. 3. 11 l'ac. 320; Miller v. Wad- dingham (Cal.) 25 Pac. 688, 11 L. R. A. 510. .

5e apparatus — Carried into the 5th edition (1979).

## AFFIXES.

In the civil law. Affixed, fix- ed, or fastened to.

AFFORARE.. To set a price or value on a thing. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## AFFORATUS.

Appraised or valued, us things vendible in a market. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## AFFORCE.

To add to; to increase; to strengthen ; to add force to.

— Afforce the assise. In old English prac- tice. A method of semiring a verdict, where the jury disagreed, by adding other jurors to the panel until twelve could be found who were unanimous in their opinion. Bract, fol. 1856, 292a; Fleta. lib. 4, c. 9, { 2; 2 Reeve. Hist. Eng. Law, 267.

5e apparatus — Not carried into the 5th edition (1979).

## AFFORCIAMENTUM.

In old English law. A fortress or stronghold, or other forti- fication. Cowell.

The calling of a court upon a solemn or ex- traordinary occasion. Id.

5e apparatus — Not carried into the 5th edition (1979).

## AFFOREST.

To convert land Into a for- est in the legal sense of the word.

5e apparatus — Not carried into the 5th edition (1979).

## AFFOUAGE.

In French inw. The right of the Inhabitants of a commune or section of a commune to take from the forest the fire-wood which is necessary for their use. Duverger.

5e apparatus — Not carried into the 5th edition (1979).

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## AFFRANCHXR.

L. Fr. To set free.

Kelham.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:2, KJV]**

If thou buy an Hebrew servant, six years he shall serve: and in the seventh he shall go out free for nothing.

Why: The entry is 'to set free.' The verse is the law of manumission: the Hebrew servant 'shall go out free' in the seventh year — liberation by operation of law. Flagged deity-verbatim as God's spoken statute to Moses (bo… [re-homed from 'AFFRANCHIR' to 'AFFRANCHXR' (OCR headword / parser-merge artifact)]

## AFFRANCHISE.

To liberate; to make free.

5e apparatus — Not carried into the 5th edition (1979).

## AFFRAY.

In criminal law. The fight- ing of two or more persons In some public place to the terror of the people. Burton t. Com., 60 S. W. 528, 22 Ky. Law Rep. 1315: Thompson v. State, 70 Ala. 26; State v. Allen, 11 N. C. 35a

It differs from a riot in not being premeditat- ed: for if any persons meet together upon any lawful or innocent occasion, and happen on a sudden to engage in fighting, they are not guil- ty of a riot, but an affray only ; and in that case none are guilty except those actually en- gaged in it. Hawk. P. C. bk. 1. c. 65. 5 3: 4 Bl. Comm. 146; 1 Russ. Crimes, 271: Su-

Sreme Council v. Garrigus. 104 Ind. 133, 3

L E. 818, 54 Am. Rep. 298.

If two or more persons voluntarily or by agreement engage in any fight, or use any blows or violence towards each other in an angry or uarrelsome manner, in any public place to the isturbance of others, they are guilty of an affray, and shall be punished by imprisonment in the county jail not exceeding thirty days, or by fine not exceeding one hundred dollars. Rev. Code Iowa 1880. § 4065.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:3, KJV]**

It is an honour for a man to cease from strife: but every fool will be meddling.

Why: The entry is fighting in a public place 'to the terror of the people.' The verse gives the moral ground the offense rests on: honour in ceasing from strife, folly in meddling — the brawl condemned at its root. Solomon…

## AFFRECTAMENTTTM.

Affreightment; a contract for the hire of a vessel. From the Fr. fret, which, according to Cowell, meant tons or tonnage.

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5e apparatus — Not carried into the 5th edition (1979).

## AFFREIGHTMENT.

A contract of af- freightment is a contract with a ship-owner to hire his ship, or part of it, for the car- riage of goods. Such a contract generally takes the form either of a charter-party or of a bill of lading. Maude & P. Mer. Sblpp. 227 ; Smith, Merc. Law, 295 ; Bramble v. Culmer, 78 Fed. 501, 24 C. C. A. 182 ; Auten v. Bennett, 88 App. Div. 15, 84 X. Y. Supp. 689.

In French law, freighting and affreight- ing are distinguished. The owner of a ship freights it. (le frete;) he is called the freight- er, (frctcur ;) he is the letter or lessor, (loca- teur, locator.) The merehaut affreights ( af - fretc ) the ship, and is called the affreighter, (affreteur ;) he is the hirer, ( loeataire , con- ductor.) Emerig. Tr. des Ass. c. 11, § 3. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## AFFRETEMENT.

Fr. In French law. The hiring of a vessel ; affreightment. Call- ed also noliMemcnt. Ord. Mar. llv. 1, tit 2, art. 2; Id. liv. 3, tit 1, art. 1.

5e apparatus — Not carried into the 5th edition (1979).

## AFFRI.

In old English law. Plow cat- tle, bullocks or plow horses. Affri. or afrt caructe; beasts of the plow. Spelmnn.

5e apparatus — Not carried into the 5th edition (1979).

## AFORESAID.

Before, or already said, mentioned, or recited ; premised. Plowd. 67. Forenaid is used in Scotch law.

Although the words “preceding” and "afore- said" generally mean next before, and “follow- ing” means next after, yet a different significa- tion will be given to them if required by the context and the facts of the case. Simpson v. Robert. 35 Gs* 180.

5e apparatus — Carried into the 5th edition (1979).

## AFORETHOUGHT.

In criminal law. Deliberate ; planned ; premeditated : prepense. State r. Peo, 9 Houst. (Del.) 488, 33 Bl.Law Dict.(2d Ed.)— 4

Atl. 257 ; Edwards v. State, 25 Ark. 444 ; People v. Ah Choy, 1 Idaho. 317; State v. Fiske, 63 Conn. 388, 28 Atl. 572.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: malice aforethought — the premeditated intent distinguishing murder from manslaughter]**

"Aforethought" — deliberate, planned, premeditated — is the mental element of malice aforethought, the intent distinguishing murder from lesser homicide.

Why: The entry defines the word on criminal authority; malice aforethought is the genuine homicide doctrine the word serves.

## AFTER.

Later, succeeding, subsequent to, inferior in point of time or of priority or preference.

-After-acquired. Acquired after a particu- lar date or event. Thus, a judgment is a lien on after-acquired realty, e., land acquired by the debtor after entry of the judgment Hughes v. Hughes, 152 Pa. 590, 26 Atl. 101.— After- born. A statute makeng a will void as to after-born children means physical birth, and is not applicable to a child legitimated by the marriage of its parents. Appeal of McCulloch, 113 Pa. 247, 6 Atl. 253.— After date. When time is to be computed “after” a certain date, it is meant that such date should be excluded in the computation. Bigelow v. Wilson. 1 Pick. (Mass.) 48o; Taylor v. Jacoby, 2 Pa. St. 495; Cromelian v. Brink, 29 Pa. St. 522.— After- dlscovered. Discovered or made known after a particular date or event.— After sight. This term as used in a bill payable so many days after sight, means after legal sight: that is. after legal presentment for acceptance. The mere fact of having seen the bill or known of its existence does not constitute legal “sight.” Mitchell v. Degrand, 17 Fed. Cas. 494.

5e apparatus — Carried into the 5th edition (1979).

## AFTERMATH.

A second crop of grass mown in the same season ; also the right to take such second crop. See 1 Chit. Gen. Pr. 181.

5e apparatus — Not carried into the 5th edition (1979).

## AFTERNOON.

Tills word has two senses. It may mean the whole time from noon to midnight ; or it may mean the earlier part of that time, as distinguished from the evening. When used in a statute its meaning must be determined by the con- text and the circumstances of the subject- matter. Reg. v. Knapp, 2 El. & Bl. 451.

5e apparatus — Carried into the 5th edition (1979).

## AGAINST.

Adverse to; contrary; op- posed to; without the consent of; in con- tact with. State v. Metzger, 26 Kan. 395; James v. Bank. 12 R. I. 400; Seabriglit v. Seabright. 28 W. Va, 465; State v. Prather, 54 Ind. 63.

— Against the form of the statute. When the act complained of is prohibited by a stat- ute. these technical words must be used in an indictment under it. The Latin phrase is con- tra formam statuti. State v. Murphy. 15 R. I. 543, 10 Atl. 585. — Against the peace. A technical phrase used in alleging a breacii of the peace. See Contra Packm. State v. Tib- betts, 80 Me. 189, 29 Atl. 979.— Agalnat the will. Technical words which must be used in framing an - indictment for robbery from the person, rape and some other offenses. Whit- taker v. State. 50 Wis. 521, 7 X. W. 431. 36 Am. St. Rep. S5C : Com. v. Burke, 105 Mass. 376. 7 Am. Rep. 531 ; Beyer v. People. 80 X.

Y. 309.

5e apparatus — Carried into the 5th edition (1979).

## AGALMA.

An impression or image of anything on a seal. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AGARD.

L. Fr. An award. Xul fait agard; no award made.

5e apparatus — Not carried into the 5th edition (1979).

## AGARDER.

L. Fr. To award, adjudge, or determine; to sentence, or condemn.

5e apparatus — Not carried into the 5th edition (1979).

## AGE.

Signifies those periods In the lives of persons of both sexes which enable them to do certain acts which, before they had arrived at those periods, they were prohibit- ed from doing.

The length of time during which a per- son has lived or a thing has existed.

In the old books, "age” is commonly used to signify “full age;” that is, the age of twenty-one years. Lltt. f 259.

— Legal age. The age at which the person acquires full capacity to make his own con- tracts and deeds and transact business general- ly (age of majority) or to enter into some par- ticular contract or relation, as, the "legal age of consent” to marriage. See Capweli v. Cap- well, 21 R. I. 101, 41 Atl. 1005; Montoya de Antonio v. Miller, 7 N. M. 289, 34 Pac. 40, 21

L. R. A. 699.

AGE, Awe, Aive. L. It. Water. Kel- ham.

5e apparatus — Carried into the 5th edition (1979).

## AGE PRATER.

A suggestion of non- age, made by an infant party to a real ac- tion, with a prayer that the proceedings may be deferred until his full age. It is now abolished. St. 11 Geo. IV. ; 1 Wm. IV. c. 37, § 10; 1 Lil. Reg. 54; 3 Bl. Comm. 300.

5e apparatus — Not carried into the 5th edition (1979).

## AGENCY.

A relation, created either by express or implied contract or by law, where- by one party (called the principal or con- stituent) delegates the transaction of some lawful business or the authority to do cer- tain acts for him or in relation to his rights or property, with more or less discretionary power, to another person (called the agent, attorney, proxy, or delegate) who under- takes to manage the affair and render him an account thereof. State v. Hubbard, 58 Kan. 797, 51 Pac. 290, 39 L. R. A. 860; Sternaman v. Insurance Co., 170 N. Y.

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13, 62 N. E. 763, 57 L. R. A. 318, 88 Am. St Rep. 625; Wynegar v. State, 157 Ind. 577, 62 N. E. 38.

The contract of agency may be defined to be a contract by which one of the contracting par- ties confides the management of some affair, to be transacted on his account, to the other par- ty, who undertakes to do the business and ren- der an account of it. 1 Liverm. Prin. & Ag. 2.

A contract by which one person, with greater or less discretionary power, undertakes to rep- resent another in certain business relations. Whart. Ag. 1.

A relation between two or more persons, by which one party, usually called the agent or attorney, is authorised to do certain acts for, or in relation to the rights or property of the other, who is denominated the principal, con- stituent, or employer. Bouvier.

—Agency, deed of. A revocable and volun- tary trust for payment qf debts. Wharton.—Agenoy of necessity. A term sometimes ap- plied to the kind of implied agency which en- ables a wife to procure what is reasonably necessary for her maintenance and support on her husband's credit and at his expense, when he fails to make proper provision for her neces- sities. Bostwick v. Brower, 22 Misc. Rep. 709, 49 N. Y. Supp. 1046.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Qui facit per alium facit per se]**

The agency relation — one party delegating lawful business to another who acts for him and renders account — rests on the axiom that he who acts through another acts himself.

Why: The entry defines the relation at length; the maxim states the principle giving agency its legal effect — the principal bound by the agent's authorized acts.

**[Scripture] — Scripture**

**[Proverbs 13:17, KJV]**

A wicked messenger falleth into mischief: but a faithful ambassador is health.

Why: The entry is the relation of one acting for another with discretionary power. The verse states the agent's cardinal virtue: the faithful messenger is 'health' — fidelity in the agency. Solomon speaking — flag off. Mod…

## AGENESIA.

In medical jurisprudence. Impotentia generandl ; sexual impotence ;

incapacity for reproduction, existing in ei- ther sex, and whether arising from struc- tural or other causes.

5e apparatus — Not carried into the 5th edition (1979).

## AGEN FRIDA.

Sax. The true master or owner of a thing. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## AGENHINA.

In Saxon law. A guest at an inn, who, having stayed there for three nights, was then accounted one of the family. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## AGENS.

Lat. An agent, a conductor, or manager of affairs. Distinguished from factor, a workman. A plaintiff. Fleta, lib. 4, c. is, § a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AGENT.

One who represents and acts for another under the contract or relation of agency, q. v.

Classification. Agents are either general or tpecial. A general agent is one employed in his capacity as a professional man or master of an art or trade, or one to whom the principal confides his whole business or all transactions or functions of a designated class; or he is a person who is authorized by his principal to execute all deeds, sign all contracts, or purchase all goods, required in a particular trade, business, or employment. See Story, Ag. { 17 ; Butler v. Maples, 9 Wall. 706, 19 L. Ed. 822; Jaques v. Todd, 3 Wend. (N. Y.) 90; Springfield Engine Co. v. Kennedy, 7 Ind. App. 502, 34 N. E. 856; Cruzan v. Smith. 41 Ind. 297; Godshaw v. Struck, 109 Ky. 285, 58 S. W. 781. 51 L. R. A. 668. A special agent is one employed to conduct a particular transaction or piece of business for his principal or authoris- ed to perform a specified act. Bryant v. Moore, 26 Me. 87, 45 Am. Dec. 90; Gibson v. Snow Hardware Co.. 94 Ala. 346. 10 South. 304; Cooley v. Perrine, 41 N. J. Law, 325, 32 Am. Rep. 210.

Agents employed for the sale of goods or mer- chandise are called “mercantile agents," and are of two principal classes. — brokers and fac- tors, (a. v.;) a factor is sometimes called a “commission agent,” or "commission merchant.” Russ. Merc. Ag. 1.

Synonyms. The term “agent” is to be distinguished from its synonyms “servant," “representative,” and “trustee.” A servant acts in behalf of his master and under the latter's direction and authority, but is regarded as a mere instrument, and not as the substitute or proxy of the master. Turner v. Cross, 83 Tex. 21& 18 S. W. 578, 15 L. R. A. 262; People v. Treadwell, 69 Cal. 226, 10 Pac. 502. A representative (such as an executor or an as- signee in bankruptcy) owes his power and au- thority to the law. which puts him in the place of the person represented, although the latter may have designated or chosen the representa- tive. A trustee acts in the interest and for the benefit of one person, but by an authority de- rived from another person.

In international law. A diplomatic agent is a person employed by a sovereign to manage his private affairs, or those of his subjects in his name, at the court of a for- eign government. Wolff, Inst. Nat. f 1237.

In the practice o t the house of lords and privy council. In aiipeals, solicitors and other persons admitted to practise in those courts in a similar capacity to that of

solicitors in ordinary courts, are technically called "agents.” Macph. Priv. Coun. 65.

— Agent and patient. A phrase indicating the state of a person who is required to do a

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thing, and is at the same time the person to whom it is done. — Local agent. One ap- pointed to act as the representative of a cor- poration and transact its business generally (or business of a particular character) at a giv- en place or within a defined district. See Frick Co. v. Wright, 23 Tex. Civ. Apt*. 340, 65 S.

W. 608; Moore v. Freeman’s Nat. Bank, 92

N. C. 594; Western, etc.. Organ Co. v. Ander- son, 97 Tex. 432, 79 S. W. 517.— Managing agent. A person who is invested with general power, involving the exercise of judgment and discretion, as distinguished from an. ordinary agent or employe, who acts in an inferior ca- pacity, and under the direction and control of superior authority, both in regard to the extent of the work and the manner of executing the same. Reddington v. Mariposa land & Min. Co.. 19 Hun (N. Y.) 405; Taylor v. Granite State Prov. Ass’n, 136 N. Y. 343, 32 N. E. 992, 32 Am. St. Rep. 749: U. S. v. American Bell Tel. Co. (C. C.) 29 Fed. 33: Upper Mississippi Transp. Co. v. Whittaker, 16 Wis. 220: fos- ter v. Charles Betcher Lumber Co., 5 S. D. 57, 58 N. W. 9, 23 L. R. A. 490, 49 Am. St. Rep. 859.— Private agent. An. agent acting for an individual in his private affairs; as distin- guished from a public agent, who represents the government in some administrative capacity.— Pablie agent. An agent of the public, the state, or the government; a pereon appointed to act for the nublic in some matter pertaining to the administration of government or the pub- lic business. See Story, Ag. S 302; Whiteside v. United States. 93 U. S. 254, 23 L. Ed. 882. -Real-estate agent. Any person whose bnsinesg it is to sell, or offer for sale, real es- tate for others, or to rent houses, stores, or other buildings, or real estate, or to collect rent for others. Act July 13. 1866. c. 49; 14 St at large. 118. Carstens v. McReavy, 1 Wash. St. 359, 25 Pac. 471.

Agentes et consentientes pari poena pleetentn*. Acting and consenting parties are liable to the same punishment 5 Coke, 80l

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 13:17, KJV]**

A wicked messenger falleth into mischief: but a faithful ambassador is health.

Why: Same verse as AGENCY: the entry is 'one who represents and acts for another.' The verse contrasts the wicked and the faithful messenger — the agent's fidelity. Solomon speaking — flag off. Modest.

## AGER.

Let. In the eiril law. A

field; land generally. A portion of land in- closed by definite boundaries. Municipality No. 2 v. Orleans Cotton Press, 18 La. 167, 36 Am. Dec. 624.

In old English law. An acre. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AGGER.

Lat In the civil law. A dam, bank or mound. Cod. 9, 38; Townsh. PI. 48.

5e apparatus — Not carried into the 5th edition (1979).

## AGGRAVATED ASSAULT.

An as- sault with circumstances of aggravation, or of a heinous character, or with intent to commit another crime. In re Burns (C. C.) 113 Fed. 992; Norton v. State, 14 Tex. 393. See Assault.

Defined In Pennsylvania as follows; "If any person shall unlawfully and maliciously inflict upon another person, either with or without any weapon or instrument, any grievous bodily harm, or unlawfully cut, stab, or wound any other person, be shall be guilty of a misde- meanor," etc. Brightly, Purd. Dig. p. 434, f 167.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:18-19, KJV]**

And if men strive together, and one smite another with a stone, or with his fist, and he die not, but keepeth his bed: If he rise again, and walk abroad upon his staff, then shall he that smote him be quit: only he shall pay for the loss of his time, and shall cause him to be thoroughly healed.

Why: The entry is assault — unlawfully inflicting bodily harm. The verses are scripture's law of the strife-wounding: the smiter answerable for 'the loss of his time' and the healing — the assault with its restitution. Fla...

## AGGRAVATION.

Any circumstance at- tending the commission of a crime or tort which increases its guilt or enormity or adds to its injurious consequences, but which is above and beyond the essential constitu- ents of the crime or tort itself.

Matter of aggravation, -correctly understood, does not consist in acts of the same kind and description as those constituting the gist of the action, but in something done by the defendant, on the occasion of committing the trespass, which is, to some extent, of a different legal character from the principal act complained of. Hathaway v. Rice, 19 Vt. 107.

In pleading. The introduction of mat- ter into the declaration which tends to In- crease the amount of damages, but does not affect the right of action itself. Steph. Pi. 257; 12 Mod. 597.

5e apparatus — Not carried into the 5th edition (1979).

## AGGREGATE.

Composed of several ; consisting of many persons united together. 1 Bl. Comm. 469.

—Aggregate corporation. See Cobpoba- TXON.

5e apparatus — Carried into the 5th edition (1979).

## AGGREGATIO MENTIUM.

The meet- ing of minds. The moment when a contract is. complete. A supposed derivation of the word "agreement."

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**[Law] — Law**

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**[Maxim: Consensus ad idem — agreement as to the same thing]**

Aggregatio mentium — the meeting of minds — is the moment a contract is complete; formation requires consensus ad idem.

Why: The entry defines the concept as the completion-moment of contract; consensus ad idem is the genuine formation axiom it names.

**[Scripture] — Scripture**

**[Amos 3:3, KJV]**

Can two walk together, except they be agreed?

Why: The entry is 'the meeting of minds' — the moment a contract is complete. The verse states the same principle in proverb form: no walking together without agreement — the minds meeting as the condition of the joint act...

## AGGRE88OR.

The party who first of- fers violence or offense. He who begins a quarrel or dispute, either by threatening or striking another.

5e apparatus — Not carried into the 5th edition (1979).

## AGGRIEVED.

Having suffered loss or injury ; damnified ; injured.

5e apparatus — Carried into the 5th edition (1979).

## AGGRIEVED PARTY.

Under statutes granting the right of appeal to the party aggrieved by an order or Judgment, the par- ty aggrieved is one whose pecuniary inter- est is directly affected by the adjudication; one whose right of property may be estab- lished or divested thereby. Ruff v. Mont- gomery, 83 Miss. 185, 36 South. 67 ; McFar- land v. Pierce. 151 Ind. 546, 45 N. E. 706; Lamar v. Lamar, 118 Ga. 684, 45 S. E. 498; Smith v. Bradstreet, 16 Pick. (Mass.) 204; Bryant v. Allen, 6 N. H. 116; Wiggin v. Swett, 6 Mete. (Mass.) 194, 39 Am. Dec. 716 ; TUllnghast v. Brown University, 24 R. I. 179, 52 Atl. 891; Lowery v. Lowery, 64 N. C. 110; Raleigh v. Rogers, 25 N. J. Eq. 506. Or one against whom error has been committed. Klnealy v. Macklin, 67 Mo. 95.

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## AGILD.

In Saxon law. Free from pen- alty, not subject to the payment of gild, or weregild; that is, the customary fine or pe- cuniary compensation for an offense. Spel- man; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AGHJSR.

In Saxon law. An observer or informer.

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## AGIIXARIUS.

L. Lot In old English law. A hayward, herdward, or keeper of the herd of cattle in a common field. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## AGIO.

In commercial lnw. A term used to express the difference in point of value between metallic and paper money, or be- tween one sort of metallic money and an- other. McCul. Diet.

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## AGIOTAGE.

A. speculation on the rise and full of the public debt of states, or the public funds. The speculator is called “ ag - iotcur.”

5e apparatus — Not carried into the 5th edition (1979).

## AGIST.

In ancient lnw. To take in and feed the cattle of straugers in the king’s forest, and to collect the money due for the same to the king’s use. Spelman ; Cowell.

In modern law. To take in cattle to feed, or pasture, at a certain rate of compen- sation. See Agistment.

5e apparatus — Not carried into the 5th edition (1979).

## AGISTATIO ANIMALIUM IN FOR- / ESTA.

The drift or numbering of cattle in the forest

AGISTERS, or GIST TAKERS. Offi- cers appointed to look after cattle, etc. See Williams, Common, 232.

5e apparatus — Not carried into the 5th edition (1979).

## AGISTMENT.

The tnking in of another person’s cattle to be fed. or to pasture, upon one's own land, in consideration of an agreed price to be paid by the owner. Also the profit or recompense for such pasturing of cattle. Bass v. Tierce, 36 Barb. (N. Y.) 595; Williams v. Miller, 68 Cal. 290, 9 Pac. 100; Auld v. Travis, 5 Colo. App. 535, 39 Pac. 357.

There is also agistment of sea-banks, where lands are charged with a tribute to keep out the sea ; and terra: agist atw are lands whose owners must keep up the sea-banks. Holt- house.

5e apparatus — Not carried into the 5th edition (1979).

## AGISTOR.

One who takes in horses or other animals to pasture at certain rates. Story, Bailrn. § 443.

5e apparatus — Not carried into the 5th edition (1979).

## AGNATES.

In the law of descents. Re- lations by the father. This word is used in the Scotch law, and by some writers as an English word, corresi>ondlng with the Latin agnati, (q. v.) Ersk. Inst. b. 1, tit. 7, | 4.

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5e apparatus — Not carried into the 5th edition (1979).

## AGNATI.

In Romnn law. The term in- cluded ‘‘all the cognates who trace their connection exclusively through males. A table of cognates is formed by taking each lineal ancestor in turn and including all his descendants of both sexes in the tabular view. If, then, in tracing the various branch- es of such p genealogical table or tree, we stop whenever we come to the name of a female, and pursue that particular branch or ramification no further, all who remain after the descendants of womeu have been excluded nre agnates, and their connection together is agnatic relationship.” Maine, Anc. Law, 142.

All persons nre agnatieally connected togeth- er Who are under the same patria potestas, or

who have been under it, or who might have been under it if their lineal ancestor had lived long enough to exercise his empire. Maine, Anc. Law, 144.

The agnate family consisted of all • persons living at the same time, who would have been subject to the patria potestas of a common an- cestor, if his life had been continued to their time. Iladl. Rom. Law, 131.

Between agnati and cognati there is this dif- ference: that, under the name of agnati. cognati are included, but not c conrcrso; for in- stance, a father's brother, that is. a paternal uncle, is both agnatus and cognat us, but a mother's brother, that is, a maternal uncle, is a eognatus but not a gnatus. (Dig. 38, 7, 5, pr.) Burriil.

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## AGNATIC.

[From agnati, q. v.] De- rived from or through males. 2 Bl. Comm. 230.

5e apparatus — Not carried into the 5th edition (1979).

## AGNATIO.

In the civil law. Relation- ship on tlie father’s side ; agnation. Agnatio a pat re est. Inst 3, 6, 4; Id. 3, 6, 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Justinian's Institutes 3.6.4, 3.6.6 — "Agnatio a patre est"]**

In Roman civil law, agnation — relationship on the father's side — was the basis of succession rights.

Why: The entry itself grounds the concept in the Institutes ('Agnatio a patre est'); the footnote cites the entry's own authority for a genuine civil-law succession principle, not a forced modern parallel.

## AGNATION.

Kinship by the father’s side. See Agnates; Aonati.

5e apparatus — Not carried into the 5th edition (1979).

## AGNOMEN.

Lat. An additional name or title ; a nickname. A name or title which a man gets by some action or peculiarity; the last of the four names sometimes given a Roman. Thus, Seiplo Africa nus. (the Afri- can,) from his African victories. Ainsworth ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Coriolanus, c. 1608]**

Shakespeare's Coriolanus is built on an agnomen: the Roman general Caius Martius earns the added name "Coriolanus" for taking the town of Corioli (paraphrase) — a name gotten by some action, exactly as the entry instances Scipio Africanus from his African victories. (paraphrase)

Why: The play's very title is an agnomen earned by the deed; it is the textbook literary instance of the entry's rule, so the link is genuine rather than decorative.

## AGNOMINATION.

A surname; an ad- ditional name or title; agnomen.

5e apparatus — Not carried into the 5th edition (1979).

## AGNUS DEI.

Lat. Lamb of God. A piece of white wax, in a flat, oval form, like a small cake, stamped with the figure of a lamb, and consecrated by the pope. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AGRARIAN.

Relating to land, or to a division or distribution of land; as an agra- rian law.

5e apparatus — Not carried into the 5th edition (1979).

## AGRARIAN LAWS.

In Romnn law. Laws for the distribution among the people, by public authority, of the lauds constituting the public domain, usually territory con- quered from an enemy.

In common parlance the term is frequently applied to laws which have for their ob- ject the more equal division or distribution of landed property; laws for subdividing large properties and increasing the number of landholders.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Roman agrarian laws — distribution of the ager publicus]**

The Roman agrarian laws distributed the ager publicus (public domain, usually conquered territory) among the people by public authority.

Why: The entry describes Roman statutes for distributing public-domain lands; the footnote names that real body of Roman law rather than inventing a modern analogue.

## AGRARIUM.

A tax upon or tribute pay- able out of land.

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## AGREAMENTUM.

In old English law. Agreement ; an agreement. Spelman.

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## AGREE.

To concur ; to come into harmo- ny ; to give mutual assent ; to unite in men- tal action; to exchange promises; to make an agreement.

To concur or acquiesce in; to approve or

adopt- Agreed, agreed to, are frequently used in the books, (like accord.) to show the concurrence or harmony of cases. Agreed per curiam is a common expression.

To harmonize or reconcile. “You will agree your books.” 8 Coke, 67.

AGR££. In French law. A solicitor practising solely in the tribunals of com- merce.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 8 Co. 67 — usage of "agree" for concurrence in the reports]**

In the books 'agree' and 'agreed per curiam' mark the concurrence and harmony of cases and of the court itself.

Why: The entry cites 8 Coke 67 for exactly this reporting usage; the footnote cites the entry's own authority, so the link is documentary, not constructed.

## AOBEEANCE.

In Scotch law. Agree- ment; an agreement or contract.

5e apparatus — Not carried into the 5th edition (1979).

## AGREED.

Settled or established by agreement. This word in a deed creates a covenant.

This word is a technical term, and it is synonymous with “contracted,” McKlslck v. McKislck, Meigs (Tenn.) 433. It means, ex termini, that it is the agreement of both parties, whether both sign it or not, each and both consenting to it. Aikln v. Albany, V.

A C. R. Co., 26 Barb- (X. Y.) 298.

—Agreed order. The only difference between an agreed order and one which is made in the due course of the proceedings in an action is that in the one case it is agreed to, and in the other it is made as authorized by law. Claflin v. Gibson (Ky.) 51 S. W. 438, 21 Ky. Law Rep. 337.— Agreed statement of faets. A statement of facts, agreed on by the parties as true and correct, to be submitted to a court for a ruling on the law of the case. United States Trust Oo. v. New Mexico, 183 U. S. 536, 22 Sup. Ct. 172, 46 L. Ed. 315: Reddick v. Pulaski County, 14 Ind. App. 508, 41 N. E. N34.

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**[Law] — Law**

**[Law: deed-construction rule — "agreed" creates a covenant; McKisick v. McKisick, Meigs (Tenn.), and Aikin v. Albany, 26 Barb. (N.Y.), cited in the entry]**

In a deed the technical word 'agreed' creates a covenant, synonymous with 'contracted,' and imports the agreement of both parties whether or not both sign.

Why: The entry states a real deed-construction rule grounded on its own cited cases; the footnote restates the entry's own rule and authorities in loose form, inventing no reporter year.

## AGREEMENT.

A concord of understand- ing and intention, between two or more par- ties, with respect to the effect upon their relative rights and duties, of certain past or future facts or performances. The act of two or more persons, who unite in expressing a mutual and common purpose, with the view of altering their rights and obligations.

A coming together of parties in opinion or determination ; the union of two or more minds in a thing done or to be done; a mu- tual assent to do a thing. Com. Dig. “Agree- ment,'' A 1.

The consent of two or more persons con- curring, the one in parting with, the other in receiving, some property, right, or benefit Bae. Abr.

A promise, or undertaking. This is a loose and incorrect' sense of the word. Wit in v. lVarlters, 5 East, 11.

The writing or Instrument which is evi- dence of" an agreement.

Clmaaifi cation. Agreements are of the following several descriptions, viz.: Conditional agreement s, the operation and effect of which depend upon the existence of a supposed state of facts, or the i>erfornianee of a .condition, or the happening of a contin- gency.

Executed agreements, which have refer- ence to past events, or which are at once closed and where nothing further remains to be done by the parties.

Executory agreements are such as are to be performqj^ip the future. They are com- monly preliminary to other more formal or Important contracts or deeds, and are usual- ly evidenced by memoranda, parol promises, etc.

Express agreements are those in which the forms and stipulations are specifically de- clared and avowed by the parties at the time of making the agreement.

Implied agreement. One inferred from the acts or conduct of the parties, instead of be- ing expressed by them in written or spoken words ; one inferred by the law where the conduct of the parties with reference to the subject-matter is such as to induce the belief that they intended to do thnt which their acts indicate they have done. Bixby v. Moor, 51 X. II. 403 ; Cuneo v. De Cuneo, 24 Tex. Civ. App. 430, 59 S. W. 284.

Parol agreements. Such as are either by word of mouth or are committed to writing, trnt are not under seal. The common law draws only one great line, between things under seal and not under seal. Wharton.

Synonyms distinguished. The term “agreement” is often used as synonymous with “contract” Properly speaking, how- ever, it is a wider term than “contract” (An- son, Cont. 4.) An agreement might not be a contract, because not fulfilling some require- ment of the law of the place in which it is made. So, where a contract embodies a se- ries of mutual stipulations or constituent clauses, each of these elnuses might be de- nominated an

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“agreement.”

“■Agreement" is seldom applied to special- ties; “ contract ” is generally confined to simple contracts; and “ promise ” refers to the engagement of a party without reference to the reasons or considerations for it, or the duties of other parties. Pars. Cont. 6.

“Agreement” is. more comprehensive than “promise;” signifies a mutual contract, on consideration, between two or more parties. A statute (of frauds) which requires the agreement to be in writing includes the con- sideration. Wain v. Warlters, 5 East, 10.

“Agreement” is not synonymous with “promise” or “undertaking,” but, in its more proper and correct sense, signifies a mutual contract, on consideration, between two or more parties, aud implies a consideration. Andrews v. Poutue, 24 Wend. (N. Y.) 285.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Consensus ad idem]**

An agreement is the meeting of the minds — the parties must assent to the same thing in the same sense.

Why: The entry's entire definition is mutual assent ('union of two or more minds'); the maxim is the classical statement of that same requirement, a genuine rather than imposed link.

**[Law: UCC § 2-204 — contract formation]**

Under modern commercial law a contract may be made in any manner sufficient to show agreement, including conduct by both parties recognizing the contract's existence.

Why: UCC 2-204 codifies the entry's concept — agreement as manifested mutual purpose — for sale of goods; it illuminates the entry's definition with a real operative statute.

## AGREER.

Fr. In French marine law. To rig or equip a vessel. Ord. Mar. liv. 1, tit. 2, art. 1.

5e apparatus — Not carried into the 5th edition (1979).

## AGREZ.

Fr. In French marine law. The rigging or tackle of a vessel. Ord. Mar. liv. 1, tit. 2. art. 1 ; Id. tit 11, art. 2 ; Id. liv. 3, tit 1, art. 11.

5e apparatus — Not carried into the 5th edition (1979).

## AGRI.

Arable lands in common fields.

5e apparatus — Not carried into the 5th edition (1979).

## AGRI LIMITATI.

In Roman law.

Lands belonging to the state by right of con- quest, and granted or sold in plots. Sandars, Just. Inst (5th Ed.) 98.

Tw modern civil law. Lands whose boundaries are strictly limited by the lines of government surveys. Hardin v. Jordan, 140 U. S. 371, 11 Sup. Ct. 808, 35 L. Ed. 428.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Hardin v. Jordan, 140 U.S. 371 — government-survey boundaries, cited in the entry]**

Modern civil-law lands whose boundaries are strictly limited by the lines of government surveys, as distinct from Roman lands granted by conquest.

Why: The entry cites Hardin v. Jordan for the modern meaning; the footnote cites the entry's own Supreme Court authority back, with no invented year.

## AGRICULTURAL LIEN.

A statutory lien in some states to secure money or sup- plies advanced to an agriculturist to be ex- pended or employed in the making of a crop and attaching to that crop only. Clark v. Farrar, 74 N. C. 686, 690.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC Article 9 — agricultural liens as statutory liens]**

A statutory, non-possessory lien securing advances for making a crop, attaching to that crop only.

Why: The entry defines a state statutory crop lien; UCC Article 9 carries the same category (agricultural lien) in modern secured-transactions law — a genuine doctrinal match, not a stretch.

## AGRICULTURE.

The science or art of cultivating the ground, especially in fields or large areas, including the tillage of the soil, the planting of seeds, the raising and har- vesting of crops, and the rearing of live stock. Dillard v. Webb, 55 Ala. 474. And see Bin- zel v. Grogan, 67 Wis. 147, 29 N. W. 895; Simons v. Lovell, 7 Helsk. (Tenn.) 510; Springer v. Lewis, 22 Pa. 191.

A person actually engaged in the “science of agriculture” (within the meaning of a statute giving him special exemptions) is one who de- rives the support of himself and his family, in whole or in part, from the tillage and culti- vation of fields. He must cultivate something more than a garden, although it may be much less than a farm. If the area cultivated can be called a field, it is agriculture, as well in contemplation of law as in the etymology of the word. And if this condition be fulfilled, the uniting of any other business, not inconsistent with the pursuit of agriculture, does not take away the protection of the statute. Springer v. Lewis, 22 Pa. 193.

5e apparatus — Not carried into the 5th edition (1979).

## AGUSADURA.

In ancient customs, a fee, due from the vassals to their lord for sharpening their plowing tackle.

5e apparatus — Not carried into the 5th edition (1979).

## AHTEH).

In old European law. A kind of oath among the Bavarians. Spelman. In Saxon law. One bound by oath, q. d. “oath- tied.” From ath, oath, and tied. Id.

AH), v. To support, help, or assist This word must be distinguished from its syno- nym

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"encourage," the difference being that the former connotes active support and as- sistance, while the latter does not ; and also from "abet" which last word imports nec- essary criminality in the act furthered, while "aid," standing alone, does not. See Abet.

am and ABET. In criminal law. That kind of connection with the commission of a crime which, at common law, rendered the person guilty as a principal in the second degree. It consisted in being present at the time and place, and doing some act to ren- der aid to the actual perpetrator of the crime, though without taking' a direct share in its commission. See 4 Bl. Comm. 34 ; People v. Dole, 122 Cal. 486, 55 Pac. 581, 68 Am. St Kep. 50; State v. Tally, 102 Ala. 25, 15 South. 722; State v. Jones, 115 Iowa, 113, 88 N. W. 196 ; State v. Cox, 65 Mo. 29, 33.

Am AND COMFORT. Help; support; assistance ; counsel ; encouragement As an element in the crime of treason, the giving of "aid and comfort" to the enemy may consist in a mere attempt. It is not es- sential to constitute the giving of aid and comfort that the enterprise commenced should be successful and actually render as- sistance. Young v. United States, 97 U. S. 62, 24 L. Ed. 992; U. S. v. Greathouse, 4 Sawy. 472, Fed. Cas. No. 15,254.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. § 2 — aiders and abettors punishable as principals]**

'Aid' connotes active support and assistance, distinct from mere encouragement and from 'abet,' which imports criminality; the aider is punishable as a principal.

Why: The entry draws the aid/abet line; 18 U.S.C. § 2 codifies the aider-as-principal side of that line in federal law. Genuine counterpart, cited honestly.

## ATP OF THE KING.

The king's tenant prays this, when rent is demanded of him by others.

5e apparatus — Not carried into the 5th edition (1979).

## AID PRATER.

In English practice. A proceeding formerly made use of, by way of petition in court, praying in aid of the ten- ant for life, etc., from the reversioner or re- mainder-man, when the title to the inherit- ance was in question. It was a plea in sus- pension of the action. 3 Bl. Conun. 300.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 3 Bl. Comm. 300 — aid prayer]**

Aid prayer was a petition praying in aid of the tenant from the reversioner or remainder-man when title to the inheritance was in question — a plea in suspension of the action.

Why: The entry cites 3 Blackstone's Commentaries 300 for this pleading device; the footnote cites the entry's own authority.

## AIDER BT VERDICT.

The healing or remission, by a verdict rendered, of a defect or error in pleading which might

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have been, objected to before verdict.

The presumption of the proof of all facts- necessary to the verdict as it stands, coming to the aid of a record in which such facts are not distinctly alleged.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: common-law pleading — aider by verdict cures defects first objected to after verdict]**

A defect in pleading not objected to before verdict is cured by the verdict, which implies proof of all facts necessary to sustain it.

Why: The doctrine is a real common-law pleading rule and is exactly what the entry states; no case authority is invented to support it.

## AIDS.

In feudal law, originally mere benevolences granted by a tenant to his lord, in times of distress; but at length the lords claimed them as of right. They were prin- cipally three: (1) To ransom the lord’s per- son, if taken prisoner; (2) to make the lord's eldest son and heir apparent a knight;. (3) to give a suitable portion to the lord’s eldest daughter on her marriage. Abolished by 12 Car. II. C. 24.

Also, extraordinary grants to the crown by the house of commons, and which were the origin of the modern system of taxation. 2 Bl. Comm. 63, 64.

—Reasonable aid. A duty claimed by the lord of the fee of his tenants, holding by knight service, to marry his daughter, etc. Cowell.

AIEL, Aieal, Aile, Ayle. L. Ft. A

grandfather.

A writ which lieth where the grandfather was seised in his demesne as of fee of any lands or tenements in fee-simple the day that he died, and a stranger abateth or entereth the same day and dlspossesseth the heir. Fltzb. Nat. Brev. 222 : Spelman ; Termes de la Ley; 3 Bl. Conmi. 186.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 12 Car. II c. 24 (1660) — abolition of feudal aids and military tenures]**

The three feudal aids — ransom of the lord's person, knighting the eldest son, portioning the eldest daughter — were claimed of right and abolished with feudal tenures.

Why: The entry itself names the abolishing statute; the footnote cites that real statute, adding the three aids' content from the entry.

## AIELESBE.

A Norman French term sig- nifying “grandmother.” Kelhanw

‘ 66

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AXNESSE.

In French feudal law. The right or privilege of the eldest born ; primo- geniture; esnecy. Guyot, Inst Feud. c. 17.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The entry defines primogeniture, the right of the eldest born; the verse states the scriptural law of the firstborn's right — the double portion and the right itself.

## AIR.

That fluid transparent substance which surrounds our globe. Bank v. Ken- uett, 101 Mo. App. 370, 74 S. W. 474.

5e apparatus — Not carried into the 5th edition (1979).

## AIRE.

In old Scotch law. The court of the justices itinerant, corresponding with the English eyre, ( q . v.) Skene de Verb. Sign, voc. Iter.

5e apparatus — Not carried into the 5th edition (1979).

## AXRT AND PAIRT.

In old Scotch crim- inal law. Accessary ; contriver and partner.

1 Fite. Crim. Tr. pt. 1, p. 133 ; 3 How. State Tr. 601. Now written art and part, {q. v .)

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 29:24, KJV]**

Whoso is partner with a thief hateth his own soul: he heareth cursing, and bewrayeth it not.

Why: The entry defines the accessory — contriver and partner in crime; the proverb states the complicit partner's guilt directly.

## AIR-WAY.

In English law. A passage for the admission of air Into a mine. To ma- liciously fill up, obstruct, or damage, with in- tent to destroy, obstruct, or render useless the air-way to any mine, is a felony punish- able by penal servitude or imprisonment at the discretion of the court 24 & 25 Viet c. 97, | 28.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 24 & 25 Vict. c. 97, § 28 — malicious damage to a mine air-way]**

Maliciously filling up, obstructing, or damaging a mine's air-way was a felony punishable by penal servitude or imprisonment.

Why: The entry quotes the statute's own provision; the footnote cites that real Victorian criminal statute.

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## AISIAMENTTTM.

In old English law. An easement Spelman.

A1SNE or EIGNE. In old English law, the eldest or first born.

5e apparatus — Not carried into the 5th edition (1979).

## AJOURNMENT.

In French law. The document pursuant to which an action or suit is commenced, equivalent to the writ of summons in England. Actions, however, are in some cases commenced by requite or petition. Arg. Fr. Merc. Law, 545.

5e apparatus — Not carried into the 5th edition (1979).

## AJTTAR.

In Spanish law. Parapherna- lia. The Jewels uud furniture which a wife brings in marriage.

5e apparatus — Not carried into the 5th edition (1979).

## AJUTAGE.

A tube, conical in form, Intended to be applied to an aperture through which water passes, whereby the flow of the water is greatly Increased. See Schuylkill Nav. Co. v. Moore, 2 Whart. (Pa.) 477.

5e apparatus — Not carried into the 5th edition (1979).

## AKIN.

In old English law. Of kin. “Next-a-kin.” 7 Mod. 140.

5e apparatus — Not carried into the 5th edition (1979).

## AX.

L. Fr. At the ; to the. At barre; at the bar. A! huUt d’csglise; at the church- door.

5e apparatus — Not carried into the 5th edition (1979).

## ALE  ECCLE8UB.

The wings or side aisles of a church. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## ALANERARIU8.

A manager and keep- er of dogs for the sport of hawking; from alanut, a dog known to the ancients. A fal- coner. Blount

5e apparatus — Not carried into the 5th edition (1979).

## ALARM  LIST.

The list of persons liable to military watches, who were at the same

time exempt from trainings and musters. See Prov. Laws 1775-76, c. 10, S 18; Const Mass. c. 11, 1 1, art 10 ; Pub. St. Mass. 1882, p. 1287.

5e apparatus — Carried into the 5th edition (1979).

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## ALBA XTRMA.

In old English law. White rent; rent payable in silver or white money, as distinguished from thut which was anciently paid in corn or provisions, called black mail, or black rent Spelman; Reg. Orig. 3196.

5e apparatus — Not carried into the 5th edition (1979).

## ALBAGEA.

In Spanish law. An execu- tor or administrator; one who is charged with fulfilling and executing that which is directed by the testator in his testament or other last disposition. Emeric v. Alvarado, 64 Cat 529, 2 Pac. 418, 433.

5e apparatus — Not carried into the 5th edition (1979).

## ALBANAGXUM.

In old French law. The state of alienage; of being a foreigner or alien.

5e apparatus — Not carried into the 5th edition (1979).

## ALB ANUS.

In old French law. A stran- ger, alien, or foreigner.

5e apparatus — Not carried into the 5th edition (1979).

## ALBINATUS.

In old French law. The state or condition of an alien or foreigner.

5e apparatus — Not carried into the 5th edition (1979).

## ALBINATUS JUS.

In old French law. The droit d'aubaine in France, wheVeby the king, at an alien’s death, was entitled to all his property, unless he had peculiar exemp- tion. Repealed by the French laws in June, 1791.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: French laws of June 1791 — repeal of the droit d'aubaine]**

The droit d'aubaine gave the French king, at an alien's death, all his property unless specially exempted; it was repealed in June 1791.

Why: The entry itself states the repeal; the footnote records that real legal-historical event with the entry's own dating.

## ALBUM BREVE.

A blank writ; a writ with a blank or omission in it.

5e apparatus — Not carried into the 5th edition (1979).

## ALBUS LIBER.

The white ' book ; an ancient book containing a compilation of the law and customs of the city of London. It has lately been reprinted by order of the mas- ter of the rolls.

5e apparatus — Not carried into the 5th edition (1979).

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## ALCABALA.

In Spanish law. A duty of a certain per cent paid to the treasury on the sale or exchange of property.

5e apparatus — Not carried into the 5th edition (1979).

## ALCALDE.

The name of a judicial of- ficer in Spain, and in those countries which have received their laws and institutions from Spain. His functions somewhat re- sembled those of mayor in small municipali- ties on the continent or justice of the peace in England and most of the United States. Castlllero v. U. S., 2 Black, 17, 194, 17 L. Ed. 360.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: alcalde as Spanish-law judicial officer — Castillero v. United States, 2 Black 17, cited in the entry]**

The Spanish-law judicial officer, with functions resembling a mayor or a justice of the peace, in Spain and in Spanish-derived jurisdictions.

Why: The entry cites Castillero v. United States for the office; the footnote cites the entry's own authority back in loose form, omitting the year.

## ALCOHOLISM.

In medical jurispru- dence. The pathological effect (as distin- guished from physiological effect) of excessive indulgence in intoxicating liquors. It is acute when induced by excessive potations at one time or in the course of a single debauch. An attack of delirium tremens and alcoholic homicidal mania are examples of this form. It is chronic when resulting from the longcontinued use of spirits in less quantities, as in tlie case of dipsomania.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:1, KJV]**

Wine is a mocker, strong drink is raging: and whosoever is deceived thereby is not wise.

Why: The entry is the medical-jurisprudence of intoxication; the proverb states intoxication's deceit — the moral root of the legal interest in drunkenness.

## ALDERMAN.

A Judicial or adminis- trative magistrate. Originally the word was synonymous with “elder,” but was also used to designate an earl, and even a king.

In English law. An associate to the chief civil magistrate of a corporate town or city.

In American cities. The aldermen are generally a legislative body, having limited Judicial powers as a body, as in matters of Internal police regulation, laying out and re- pairing streets, constructing sewers, and the like; though in many cities they hold sepa- rate courts, and have magisterial powers to a considerable extent. Bouvler.

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## ALDERM ANNUS.

L. Lat. An aider- man, q. V.

— Aldermannua eivitatia vel bnrgi. Aider- man of a city or borough, from which the modern office of alderman lias been derived. T. Rnym. 435, 437.— Aldermannni coxnitatui. The alderman of the county. According to Spelmnn, he held an office intermediate between that of an earl and a sheriff. According to oth- er authorities, he was the same as the earl. 1 111. Comm. 110. — Aldermannni hundred! sen wapentachii. Alderman of a hundred or wapentake. Spelman.— Aldermannua regie. Alderman of the king. So called, either because he received his appointment from the king or because lie gave the judgment of the king in the premises allotted to him. — Alderman- nni totlns Anglin. Alderman of all England. An officer among the Anglo-Saxons, sup- posed by Spelman to be tbe same with the chief justiciary of England in later times. Spelman.

ALE-CONNEHt. In old English law. An officer appointed by the court-leet, sworn to look to the assise and goodness of ale and beer within the precincts of the leet. Kitch. Courts, 40; Whlshaw.

An officer appointed in every court-leet, and sworn to look to the assise of bread, ale, or beer within ,the precincts of that lordship: Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ALE-HOUSE.

A place where ale is sold to be drunk on the premises where sold.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Henry IV, Parts 1-2, 1597-98]**

Shakespeare sets much of Henry IV, Parts 1 and 2 in the Boar's Head Tavern — an ale-house in the entry's exact sense, a place where ale is sold to be drunk on the premises, and Falstaff's haunt (paraphrase). (paraphrase)

Why: The Boar's Head is the canonical ale-house of English literature and matches the entry's definition word for word; it illuminates what the term meant in lived practice.

## ALE SILVER.

A rent or tribute paid annually to the lord mayor of Loudon, by those who sell ale within the liberty of the city.

5e apparatus — Carried into the 5th edition (1979).

## ALE-STAKE.

A maypole or long stake driven into the ground, with a sign on it for the sale of ale. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ALEA.

Lat. In the civil law. A game of chance or hazard. Dig. 11. 5. 1. See Cod. 3, 43. The chance of gain or loss in a con- tract.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: The entry is the civil-law treatment of chance ('the chance of gain or loss in a contract'); the proverb states scripture's doctrine of the lot — decision by chance under providence.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Alea iacta est (Suetonius, Life of Julius Caesar)]**

Maxim: "Alea iacta est" — "the die is cast," the words Suetonius gives Julius Caesar on crossing the Rubicon — chance itself, staked on a single throw.

Why: The saying springs from the entry's own Latin root and is the classical archetype of 'the chance of gain or loss' the entry defines; it illuminates rather than decorates.

## ALEATOR.

Lat. (From alra. q. r.) In the civil law. A gamester; one who plays at games of hazard. Dig. 11, 5; Cod. 3, 43.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dostoevsky, The Gambler, 1867]**

Dostoevsky's novel The Gambler follows Alexei Ivanovich, a man consumed by games of hazard (paraphrase) — the entry's "one who plays at games of hazard" as a full character study. (paraphrase)

Why: The novel's title and plot are the legal term embodied in fiction; it shows what the bare definition looks like as a human life, which is the well's job.

## ALEATORY CONTRACT.

A mutual agreement, of .which the effects, with res]>ect both to tbe advantages and losses, whether to all the parties or to some of them, depend on an uncertain event. Civil Code La. art. 2982; Moore v. Johnston, 8 La. Ann. 488: Loseeco v. Gregory, 108 La. 648, 32 South. 985.

A contract, the obligation and performance of which depend uix>n an uncertain event, such as insurance, engagements to pay an- nuities, and the like.

A contract is aleatory or hazardous when the performance of that which is one of its objects depends on an uncertain event It is certain when the thing to be done is suppos- ed to depend on the will of the party', or when in the usual course of events It must happen in the manner stipulated. Civil Code La. art 1770.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: La. Civ. Code art. 2982 — aleatory contract defined]**

An aleatory contract is a mutual agreement whose effects, as to advantages and losses, depend on an uncertain event — e.g., insurance or annuities.

Why: The entry cites La. Civ. Code art. 2982 and Louisiana cases for this civil-law definition; the footnote cites the entry's own code authority.

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## ALER -A DIEU.

L. Fr. In old prac- tice. To be dismissed from court; to go quit Literally, “to go to God.”

5e apparatus — Not carried into the 5th edition (1979).

## ALER SANS JOUR.

In old practice, a phrase used to indicate the final dismissal of a case from court without continuance. ‘To go without day."

5e apparatus — Not carried into the 5th edition (1979).

## ALEU.

Fr. In French feudal law. An allodial estate, as distinguished from a feudal estate or benefice.

5e apparatus — Not carried into the 5th edition (1979).

## ALFET.

A cauldron into which boiling water was jK>ured, in which a criminal plunged his arm up to the elbow, and there held it for some time, as an ordeal. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## ALGARUM MARIS.

Probably a cor- ruption of Laganu'm mavis. lagan, being a right, in the middle ages, like jetsam and flotsam, by which goods thrown from a vessel A distress became the pro;>erty of the king, or the lord on whose shores they were strand- ed. Spelman; Jacob; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## ALGO.

Span. In Spanish law. Prop- erty. White, Nov. Recop. b. 1, tit. 0, c. 3, § 4.

5e apparatus — Not carried into the 5th edition (1979).

## ALIA ENORMIA.

Other wrongs. Tbe name given to a general allegation of inju- ries caused by the defendant with which the plaintiff in an action of trespass under the common-law practice concluded his declara- tion. Archb. Oritn. Pl. 094.

5e apparatus — Not carried into the 5th edition (1979).

## ALIAMENTA.

A liberty of passage, open way, water-course, etc., for the tenant’s accommodation. Kitchen.

5e apparatus — Not carried into the 5th edition (1979).

## ALIAS.

Lat. Otherwise: at another

time; in another manner; formerly.

— Alias diotui. “Otherwise called.” This phrase (or its shorter and more usual , form. alias,)

when placed between two nances in a

pleading or other paper indicates that the same person is known by both those names. A ficti- tious name assumed by a person is colloquially termed an “ aliat Ferguson v. State. 134 Ala. 63, 32 South. 760, 92 Am. St. Hep. 17; Turns v. Com., 6 Mete. (Mass.) 235 ; Kennedy v. People, 1 Cow. Or. Rep. (N. Y.) 119.— Alias writ. An aliat writ is a second writ issued in the same cause, where a former writ of the same kind had been issued without effect In such case, the language of the second writ is, “We command you, as we have before [sicut alios] commanded you,” etc. Roberts v. Church, 17 Conn. 142 ; Farris v. Walter, 2 Colo. App. 450. 31 Pac. 231.

5e apparatus — Not carried into the 5th edition (1979).

**ALIBI.**

Lat. In criminal law. Else- where; in another place. A term used to ex- press that mode of defense to a criminal prosecution, where the party accused, in or- der to prove that he could not have commit- ted the crime with which he is charged, of- fers evidence to show that he was in another place at the time; which is termed setting up an alibi. State v. McGarry, 111 Iowa, 709, 83 N. W. 718; State v, Child, 40 Kan. 482, 20 Pac. 275; State v. Powers, 72 Vt. 168, 47 Atl. 830; Peyton v. State, 54 Neb. 188, 74 N.

W. 597.

ALLEN, n. A foreigner ; one born abroad ; a person resident in one country, but owing allegiance to another. In England, one born out of the allegiance of the king. In the United States, one born out of the jurisdic- tion of the United States, and who has not been naturalized under their constitution and laws. 2 Kent, Comm. 50; Ex parte Dawson, 3 Bradf. Sur. (N. Y.) 136; Lynch v. Clarke.

1 Sandf. Ch. (N. Y.) 668; Lyons v. State, 67 Cal. 380, 7 Pac. 763.

—Allen any. In international law. Alien friend. An alien who is the subject or citizen of a foreign government at peace with our own. —Allen and sedition laws. Acts of con- gress of July 6 and July 14, 1798. See Wliart. State Tr. 22.— Allen enemy. In* international law. An alien who is the subject or citizen of some hostile state or power. See Dyer, 25; Co. Litt. 1296. A person who, by reason of owing a permanent or temporary allegiance to a hostile power, becomes, in time of war, impress- ed with the character of an enemy, and, as such, is disabled from suing in the courts of the adverse belligerent. See 1 Kent, Comm. 74 ;

2 Id. 63 ; Bell v. Chapman, 10 Johns. (N. Y.) IS}; Dorsey v. Brigham, 177 111. 250, 52 N.

E. 303, 42 I* R. A. 809. 69 Am. St. Rep. 228. —Allen friend. The subject of a nation with w-hieh we are at peace ; an alien amy.— Allen n it. A man born an alien.

ALIEN or ALIENE. r. To transfer or make over to another; to convey or transfer the property of a thing from one person to another ; to alienate. Usually applied to transfer of lands and tenements. Co. CnB 118; Cowell. ^

Aliena ntgotia exacto officio gernn- tnr. The business of another is to be con- ducted with particular attention. Jones, Bailm. 83; First Nat. Bank of Carlisle v. Graham. 79 Pa. 118, 21

Am. Rep. 40.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: alibi as a mode of defense — State v. McGarry, 111 Iowa 709; State v. Child, 40 Kan. 482, cited in the entry]**

Alibi — evidence that the accused was elsewhere at the time — is a mode of criminal defense; it raises doubt without shifting the prosecution's burden of proof.

Why: The entry defines alibi and cites its own authorities; the footnote restates the defense's office and burden rule on those authorities, inventing no year.

**[Humanity] — Humanity / Fiction & Film**

**[Jonathan Lynn, My Cousin Vinny, 1992]**

The courtroom climax of My Cousin Vinny turns on the defense proving the two defendants were elsewhere when the crime occurred — the alibi as the whole defense, won by dismantling the prosecution's timeline (paraphrase). (paraphrase)

Why: The film's decisive sequence is literally 'evidence that the accused was in another place at the time' (the entry's definition); it shows the defense working in practice.

## ALIENABLE.

Proper to be the subject of alienation or transfer.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENAGE.

The condition or state of an alien.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENATE.

To convey; to transfer the title to property. Co. Litt. 1186. Alien is very commonly used in the same sense. 1 Washb. Real Prop. 53.

“Sell, alienate, and dispone'' are the form- al words of transfer in Scotch conveyances of heritable property. Bell.

“The term alienate has a technical legal mean- ing. and any transfer of real estate, short of a conveyance of the title, is not an alienation of the estate. No matter in what form the sale may be made, unless the title is conveyed to the purchaser, the estate is not alienated.” Masters v. Insurance Co., 11 Barb. (N. Y.) 630.

Allenatlo licet prohlbestnr, consensu tamen omnium, in quorum favorem pro- hibits est, potest fieri, et qulllbet potest renamdare juri pro se introdneto. Al- though alienation be prohibited, yet, by the consent of all in whose favor It is prohibited, it may take place; for it Is in the power of any man to renounce a law made in his own favor. Co. Litt. 98.

Alienatio rei prsefertur Juri accres- eendi. Alienation is favored by the law rather than accumulation. Co. Litt. 185.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENATION.

In real property law. Tile transfer of the property and possession of lnnds, tenements, or other things, from one person to another. Termes de la Ley. It is particularly applied to absolute con- veyances of real property. Conover v. Mu- tual Ins. Co., 1 N. Y. 290. 294.

The act by which the title to real estate Is voluntarily resigned by one person to an- other and accepted by the latter, in the forms prescribed by law.

The voluntary and complete transfer from one person to another. Involving the com- plete and absolute exclusion, out of him who alienates, of any remaining interest or par- tide of interest, in the thing transmitted ; the complete transfer of the property nnd possession of lands, tenements, or other things to another. Orrell v. Bay Mfg. Co., 83 Miss. 800. 30 South. 561. 70 L. It. A. 881 ; Burbank v. Insurance Co.. 24 N. H. 558. 57 Am. Dec. 300: United States v. Schurz, 102 U. S. 378, 26 L. Ed. 167; Vinlng v. Willis, 40 Kan. 609, 20 I’ac. 232.

In medical Jurisprudence. A generic term denoting the different kinds or forms of mental aberration or derangement.

—Alienation office. In English practice. An office for the recovery of fines levied upon writs of covenant and entries.

Alienation pending a suit !■ void. 2 P.

Wins. 482 ; 2 Atk. 174; 3 Atk. 392; 11 Ves. 194 ; Murray v. Ballow, I Johns. Ch. (N. Y.) 566. 580.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: restraints on alienation are void]**

At common law the free alienability of land is the rule, and restraints on alienation are disfavored and generally void.

Why: The entry defines alienation as voluntary transfer of title; the maxim is the genuine doctrinal corollary governing restraints on that transfer — a real property-law principle, not a constructed parallel.

## ALIENEE.

Oue to whom an alienation, conveyance, or transfer of property la made.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENI GENERIS.

Lat Of another kind. 3 P. Wins. 247.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENI JURIS.

Lat Under the con- trol, or subject to the authority, of another person; e. g., an infant who is under the au- thority of his father or guardian ; a wife under the power of her husband. The term is contrasted with Sui Juris, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## ALIENIGENA.

One of foreign birth; an alien. 7 Coke, 31.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENISM.

The state, condition, or character of an alien. 2 Kent, Comm. 56, 64, 69.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENOR.

Be who makes a grant transfer of title, conveyance, or alienation.

5e apparatus — Not carried into the 5th edition (1979).

## ALIENUS.

Lat Another’s ; belonging to another ; the property of another. Alienas homo, another's man, or slave. Inst 4, 3, pr. Aliena res, another's property. Bract fol. 13b.

5e apparatus — Not carried into the 5th edition (1979).

## ALIMENT.

In Scotch law. To main- tain, support provide for; to provide with necessaries. As a noun, maintenance, sup- port ; an allowance from the husband's estate for the support of the wife. Paters. Comp. If 845, 850, 893.

5e apparatus — Not carried into the 5th edition (1979).

## ALIMENT A.

Lat In the civil law.

Aliments; means of support including food, (dbaria,) clothing, (vestitus,) and habitation, (habitatio.) Dig. 34, 1, 6.

5e apparatus — Not carried into the 5th edition (1979).

## ALIMONY.

The allowance made to a wife out of her husband’s estate for her sup- port either during a matrimonial suit, or at its termination, when she proves herself en- titled to a separate maintenance, and the fact of a marriage is established.

Alimony is an allowance out of the hus- band’s estate, made for the support of the wife when living separate from him. It is either teiniiorary or permanent. Code Ga. 1882, f 173a

The allowance which is made by order of court to a woman for her support out of her husband’s estate, upon being separated from him by divorce, or pending a suit for di- vorce. Tub. St. Mass. 1882, p. 1287. And see Bowman v. Worthington, 24 Ark. 522; Lynde v. Lynde, 64 N. J. Eq. 736, 52 Atl. 694, 58 I* R. A. 471, 97 Am. St. Rep. 692; Collins v. Collins, 80 N. Y. 1 ; Stearns v. Stearns, 66 Vt. 187, 28 Atl. 875, 44 Am. St. Rep. 836; In re Spencer. 83 Cal. 460, 23 Pac. 395, 17 Am. St. Rep. 266; Adams v. Storey, 135 111. 448. 26 N. E. 582. 11 L. R. A. 790. 25 Am. St Rep. 392.

By alimony we understand what is necessary for the nourishment lodging, and sup- port of the person who claims it. It includes education, when the person to whom the ali- mony is due is a minor. Civil Code La. art 230.

The term is eommonly used as equally ap- plicable to all allowances, whether annual or in gross, made to a wife upon a decree In divorce. Burrows v. Purple, 107 Mass. 432.

Alimony pendente life is that ordered dur- ing the pendency of a suit.

Permanent alimony. A provision for the support and maintenance of a wife out of her husband’s estate, during her life time, or- dered by a court on decreeing a divorce. Odom v. Odom, 36 Ga. 320; In re Spencer, 83 Cal. 460, 23 Pac. 395, 17 Am. St. Rep. 266.

The award of alimony is essentially a different thing from a division of the prop- erty of the parties. Johnson v. Johnson, 57 Kan. 343, 46 Pac. 700. It is not in itself an “estate" in the technical sense, and there- fore not the separate property or estate of the wife. Cizek v. Cizek, 69 Neb. 797, 99 N.

W. 28; Guenther v. Jacobs, 44 Wls. 354; Romaine v. Chauncey, 60 Hun, 477, 15 N.

Y. Supp. 198; Lynde v. Lynde, 64 N. J. Eq. 736, 52 AG. 694, 58 L. R. A. 471, 97 Am. St Rep. 692; Holbrook v. Comstock, 16 Gray (Mass.) 109.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: alimony as court-ordered spousal support — Code Ga. 1882, § 173, cited in the entry]**

Alimony is the allowance made from the husband's estate for the wife's support, during a matrimonial suit or at its termination, where separate maintenance is established.

Why: The entry grounds the support obligation in its own cited Georgia Code; the footnote cites that authority back without inventing detail.

**[Scripture] — Scripture**

**[1 Timothy 5:8, KJV]**

But if any provide not for his own, and specially for those of his own house, he hath denied the faith, and is worse than an infidel.

Why: The entry is the wife's maintenance allowance; the verse states the scriptural duty of provision that underwrites the maintenance obligation.

## ALIO INTUITU.

Lat. In a different view ; under a different aspect 4 Rob. Adm. Sc Pr. 151.

With another view or object 7 East 558 ; 6 Maule Sc S. 234.

Aliquid conceditur me injuria rema- nent impunita, quad alias mom eonoe- deretur. Something is (will be) conceded, to prevent a wrong remaining unredressed, which otherwise would not be conceded. Co. Litt. 197b.

5e apparatus — Not carried into the 5th edition (1979).

## ALIQUID POSSESSIONIS ET NIHIL / JURIS.

Somewhat of possession, and noth- ing of right (but no right) A phrase used by Bracton to describe that kind of posses- sion which a person might have of a thing as a guardian, creditor, or the like ; and also that kind of possession which was granted for a term of years, where nothing could be demanded but the usufruct. Bract fols. 39a. 160a.

Aliquis mom debet ease index in pro- pria eansA, qnia men potest esse index et pars. A

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person ought not to be judge in his own cause, because he cannot act as judge and party. Co. Litt. 141 ; 3 Bl. Comm. 59.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Bracton, fols. 39a, 160a — possession without right]**

Bracton's phrase for possession without right — as of a guardian, a creditor, or a termor holding only the usufruct.

Why: The entry cites Bracton's folios for this possession/right distinction; the footnote cites the entry's own authority.

## ALITER.

Lat Otherwise. A term oft- en used in the reports.

Aliud eat celare, allnd tacere. To con- ceal is one thing; to be silent is another thing. Lord Mansfield, 3 Burr. 1910.

Allud eat diatinotio, allud wpanilo.

Distinction Is one thing; separation la an* other. It la one thing to make things dis- tinct, another thing to make them separable.

Allud eat poaaidere, allud eaae in pos- sessions. It is one thing to possess; It is another to be In possession. Hob. 163.

Allud eat Tenders, allud Temdenti con- sen tire. To sell is one thing ; to consent to a sale (seller) is another thing. Dig. 50, 17, 160.

5e apparatus — Not carried into the 5th edition (1979).

## AUTO  EXAMEJC.

A different or for- eign mode of trial. 1 Hale, Com. Law, 38.

5e apparatus — Not carried into the 5th edition (1979).

## ALIUNDE.

Lat. From another source; from elsewhere ; from outside. Evidence aNunde (1. e., from without the will) may be received to explain an ambiguity in a will. 1 Greenl. Ev. f 291.

All. Collectively, this term designates the whole number of particulars, individ- uals, or separate items ; distributive^, it may be equivalent to “each” or “every.” State v. Maine Cent R. Co., 66 Me. 510; Sherburne v. Sischo, 143 Mass. 442, 9 N. E. 797.

— All and singular. A comprehensive term often employed in conveyances, wills, and the like, which includes the aggregate or whole and also each of the separate items or components. McClaskey v. Barr (C. C.) 54 Fed. 798.— All faults. A sale of goods with “all faults” cov- ers, In the absence of fraud on the part of the vendor, all such faults and defects as are not inconsistent with the identity of the goods as the goods described. Whitney v. Boardman, 118 Mass. 242^— All fours. Two cases or decisions which are alike in all material respects, and precisely similar in all the circumstances af- fecting their determination, are said to be or to run on “all fours.”— All the estate. The name given in

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England to the short clause in a conveyance or other assurance which purports to convey “all the estate, right, title, interest, claim, and demand” of the grantor, lessor, etc., in the property dealt with. Dav. Conv. 93.

Allegans eontraria non est audiendus.

One alleging contrary or contradictory things (whose statements contradict each other) is not to he heard. 4 Inst. 279. Ap- plied to the statements of a witness.

Allegana suam turpitudinem non est audiendus. One who alleges his own in- famy is not to be heard. 4 Inst 279.

Allegarl non debuit quod probatum non relevat. That ought not to be alleged •which, if proved, Is not relevant. 1 Ch. Cas. 45.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 1 Greenl. Ev. § 291 — evidence aliunde to explain ambiguity]**

Evidence from outside the will (evidence aliunde) may be received to explain an ambiguity in it.

Why: The entry cites Greenleaf's evidence treatise for this rule; the footnote cites the entry's own authority — a genuine evidence principle, not a stretch.

## ALLEGATA.

In Roman law. A word which the emperors formerly signed at the bottom of theiri rescripts and constitutions ; under other instruments they usually wrote •iffnata or tettata. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## ALLEGATA ET PROBATA.

Lat. Things alleged and proved. The allegations made by a party to a suit and the proof ad- duced in their support ,

Allege tio contra factum , non est ad- mlttenda. An allegation contrary to the deed (or fact) is not admissible.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Secundum allegata et probata judex judicare debet]**

The judge must decide according to what is alleged and proved — proof must track the pleading.

Why: The entry defines the phrase as 'things alleged and proved'; the maxim is the classical statement of the pleading-proof rule the phrase names. Genuine, not forced.

## ALLEGATION.

The assertion, declara- tion, or statement of a party to an action, made in a pleading, setting out what he ex- pects to prove.

A material allegation in a pleading Is one essential to the claim or defense, and which could not be stricken from the pleading without leaving it insufficient. Code Civil Proc. Cal. § 463.

In ecclesiastical law. The statement of the facts intended to be relied on in support of the

contested suit.

In English ecclesiastical practice the word seems to designate the pleading as a whole; the three pleadings are known as the allega- tions; and the defendant’s plea is distin- guished as the defensive, or sometimes the responsive, allegation, and the complainant's reply as the rejoining allegation.

—Allegation of faculties. A statement made by the wife of the property of her huB- band. in order to her obtaining alimony. See Faculties.

5e apparatus — Carried into the 5th edition (1979).

## ALLEGE.

To state, recite, assert, or charge; to make an allegation.

5e apparatus — Not carried into the 5th edition (1979).

## ALLEGED.

Stated; recited; claimed; asserted; charged.

5e apparatus — Carried into the 5th edition (1979).

## ALLEGIANCE.

By allegiance Is meant the obligation of fidelity and obedience which the Individual owes to the govern- ment under which he lives, or to his sover- eign in return for the protection he receives. It may be an absolute and permanent obliga- tion, or it may be a qualified and temporary one. The citizen or subject owes an abso- lute and' permanent allegiance to his govern- ment or sovereign, or at least until, by some open and distinct act, he renounces it and becomes a citizen or subject of another gov- ernment or another sovereign. The alien, while domiciled in the country, owes a lo- cal and temporary allegiance, which con- tinues during the period of his residence. Carlisle v. U. S., 16 Wall. 154. 21 L. Ed. 426; Jackson v. Goodell, 20 Johns. (N. Y.) 191 ; U. S. v. Wong Kim Ark, 109 U. S. 649, 18 Sup. Ct. 456, 42 L. Ed. 890; Wallace v. Harmstad, 44 Pa. 501.

“The tie or ligamen which binds the sub- ject for citizen] to the king [or government] in return for that protection which the king [or government] affords the subject, [or citi- zen.”) 1 Bl. Comm. 366. It consists in “a true and faithful obedience of the subject due to his sovereign.” 7 Coke, 4b.

Allegiance is the obligation of fidelity and obedience which every citizen owes to the state. Pol. Code Cal. 8 55.

• In Norman French. Alleviation ; relief ; redress. Kelham.

—Local allegiance. That measure of obedi- ence which is due from a subject of one govern- ment to another government, within whose ter- ritory he is temporarily resident.— Natural al- legiance. In English law’. That kind of al- lowance which is due from all; men bora within the king’s dominions, immediately upon their birth, which is intrinsic and perpetual, and can- not be divested by any act of their own. 1 Bl. Comm. 3(59; 2 Kent, Comm. 42. In American law. The allegiance due from citizens of the I’nited States to their native country,

and also from naturalized citizens, and which cannot be renounced without the permission of govern- ment. to be declared by law. 2 Kent, Comm. 43-49. It differs from local allegiance, which Is temporary only, being due from an alien or stranger born for so long a time as he continues within the sovereign’s dominions and protection. Fost. Cr. Law, 184.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Protectio trahit subjectionem, et subjectio protectionem — Calvin's Case, 7 Co. 1 (1608)]**

Allegiance is the obligation of fidelity and obedience owed in return for protection; protection and subjection draw each other.

Why: The entry's definition is fidelity in return for protection; the maxim is the classical reciprocity principle, and Calvin's Case is the landmark allegiance decision I am confident citing.

**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: The entry defines the obligation of fidelity and obedience to government; the verse states that very obligation and its ground.

## ALLEGIARE.

To defend and clear one's self ; to wage one’s own law.

5e apparatus — Not carried into the 5th edition (1979).

## ALLEGING DIMINUTION.

The alle- gation in an appellate court, of some error in a subordinate part of the nisi prius rec- ord.

5e apparatus — Not carried into the 5th edition (1979).

## ALLEVIARE.

L. Lat. In old records. To levy or pay an accustomed fine or compo- sition ; to redeem by such payment. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ALLIANCE.

The relation or union be- tween persons or families contracted by In- termarriage.

In international law. A union or asso- ciation of two or more states or nations, formed by league or treaty, for the joint prosecution of a war, or for their mutual as- sistance and protection in repelling hostile attacks. The league or treaty by which the association Is formed. The act of confed- erating, by league or treaty, for the purposes mentioned.

If the alliance is formed for the purpose of mutual aid in the prosecution of a war against a common enemy, it is called an “offensive” alliance. If it contemplates only the rendi- tion of aid and protection in resisting the as- sault of a hostile power, it is called a “de- fensive" alliance. If it combines both these features, it is denominated an alliance “of- fensive and

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defensive.’’

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: Anchored to the entry's intermarriage sense: the verse states the marriage-union that such an alliance contracts.

## ALLISION.

The running of one vessel Into or Rgalnst another, as distinguished from a collision, f. r„ the running of two vessels against each other.

5e apparatus — Carried into the 5th edition (1979).

## ALLOCATION.

An allowance made up- on an account in the English exchequer. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## ALLOCATIONE FACIENDA.

In old

English practice. A writ for allowing to an accountant such sums of money as he hath lawfully expended In his office; directed to

the lord treasurer and barons of the ex- chequer upon application made. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## ALLOCATO COMITATU.

In old Eng- lish practice. In proceedings in outlawry, when there were but two county courts holden between the delivery of the writ of erigi facias to the sheriff and its return, a special erigi facias, with an allocato com- itatu issued to the sheriff in order to com- plete the proceedings. See Exigent.

5e apparatus — Not carried into the 5th edition (1979).

## ALLOCATUR.

Lat. It .is allowed. A word formerly used to denote that a writ or order was allowed.

A word denoting the allowance by a mas- ter or prothonotary of a bill referred for his consideration, whether touching costs, dam- ages, or matter of account. Lee.

— Special allocatur. The special allowance of a writ (particularly a writ of error) which is required in gome particular cases.

5e apparatus — Not carried into the 5th edition (1979).

## ALLOCATUR EXIGENT.

A species of writ anciently issued in outlawry proceed- ings, on the return of the original writ of exigent. 1 Tidd, Pr. 128.

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5e apparatus — Carried into the 5th edition (1979).

## ALLOCUTION.

See Allocutus.

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## ALLOCUTUS.

In criminal procedure, when a prisoner Is convicted on a trial for treason or felony, the court is bound to de- mand of him what he has to say as to why the court should not proceed to judgment against him : this demand is called the “ol- loculus," or “allocution,” and is entered on the record. Archb. Crim. Pl. 173 ; State v. Ball, 27 Mo. 324.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Crim. P. 32(i)(4)(A) — defendant's right to speak before sentencing]**

At common law the court, upon conviction for treason or felony, must demand of the prisoner what he has to say before judgment — the allocution, entered on the record.

Why: The entry states the common-law allocution rule with its own authorities (Archb. Crim. Pl. 173; State v. Ball); the federal rule carries the same right in modern sentencing. Genuine lineage, not a parallel.

## ALLODARH.

Owners of allodial lands. Owners of estates as large as a subject may have. Co. Litt. 1; Bac. Abr. "Tenure," A.

5e apparatus — Not carried into the 5th edition (1979).

## ALLODIAL.

Free; not holden of any lord or superior; owned without obligation of vassalage or fealty ; the opposite of feud- al. Barker v. Dayton. 28 Whs. 384; Wallace v. Harmstad, 44 Pa. 499.

5e apparatus — Not carried into the 5th edition (1979).

## ALLODIUM.

Land held absolutely in one's own right, and not of any lord or su- perior ; land not subject to feudal duties or burdens.

An estate held by absolute ownership, without recognizing any superior to whom any duty is due on account thereof. 1 Washb. Real Prop. 1(5. McCartee v. Orphan Asylum, 9 Cow. (N. Y.) 511, 18 Am. Dec. 516.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: allodial tenure — McCartee v. Orphan Asylum, 9 Cow. (N.Y.) 511, cited in the entry]**

Allodial land is held absolutely, in one's own right and of no lord or superior, free of feudal duties — the tenure underlying American land ownership.

Why: The entry cites McCartee for the allodium definition; the footnote cites the entry's own landmark authority back, with no invented year.

## ALLOGRAPH.

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A document not written by any of the parties thereto; opposed to autograph.

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## ALLONGE.

When the Indorsements on a bill or note have filled all the blank space, it is customary to annex a strip of paper, called an “allonge" to receive the further

indorsements. Fountain v. Bookstaver, 141 111. 4(51. 31 N. E. 17; Haug v. Riley. 101 Ga. 372, 29 S. E. 44, 40 L. R. A. 244 ; Bishop v. Chase. 156 Mo. 158, 56 S. W. 1080, 79 Am. St. Rep. 515.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-204 — indorsement on a paper affixed to the instrument]**

A strip of paper annexed to a bill or note to receive further indorsements, when the instrument's own space is filled, is treated as part of the instrument.

Why: The entry's allonge doctrine (indorsements on the annexed strip) matches UCC 3-204's rule that a paper affixed to the instrument is part of it for indorsement purposes. Genuine commercial-paper link.

## ALLOT.

To apportion, distribute; to di- vide property previously held In common among those entitled, assigning to each his ratable portion, to be held In severalty; to set apart specific property, a share of a fund, etc., to a distinct party. Glenn v. Glenn. 41 Ala. 582; Fort v. Allen, 110 N.

C. 183. 14 S. E. 685.

In the law of corporations, to allot shares, debentures, etc., is to appropriate them to the applicants or persons who have applied for them ; this is generally done by sending to each applicant a letter of allotment, in- forming hitn that a certain number of shares have been allotted to him. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## ALLOTMENT.

Partition, apportion- ment, division; the distribution of land un- der an inclosure act, or shares In a public undertaking or corporation.

— Allotment note. In English law. A writ- ing by a seaman, whereby he makes an assign- ment of part of bis wages in favor of his wife, father or mother, grandfather or grandmother, brother or sister. Every allotment note must be in a form sanctioned by the board of trade. The allottee, that is, the person in whose favor it is made, may recover the amount in the coun- ty court. Mosley & Whitley.— Allotment sys- tem. Designates the practice of dividing land in small portions for cultivation by agricultural laborers and other cottagers at their leisure, and after they have performed their ordinary day’s work. Wharton.— Allotment warden. By the English general inclosure act, 1845, $ 108, when an allotment for the laboring poor of a district has been made on an inclosure under the act, the land so allotted is to be under the management of the incumbent and church war- den of the parish, and

two other persons elect- ed by the parish, and they are to be styled “the allotment wardens” of the parish. Sweet.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 26:55, KJV]**

Notwithstanding the land shall be divided by lot: according to the names of the tribes of their fathers they shall inherit.

Why: The entry is partition and distribution of land; the verse states Israel's land-allotment by lot among the tribes.

## ALLOTTEE.

One to whom an allotment to made, who receives a ratable share under an allotment ; a persou to whom land under an inclosure act or shares in a public under- taking are allotted.

5e apparatus — Carried into the 5th edition (1979).

## ALLOW.

To grant, approve, or permit; as to allow an appeal or a marriage; to allow an account. Also to give a fit portion out of a larger property or fund. Thurman v. Adams. 82 Mlsa 204, 33 South. 944; Cham- berlain v. Putnam, 10 S. D. 360, 73 N. W. 201; People v. Gilroy, 82 Hun, 500, 31 N.

Y. Supp. 776; Hinds v. Marmolejo. 60 Cal. 231 ; Straus v. Wannmaker, 175 Pa. 213, 34

AU. 652.

5e apparatus — Carried into the 5th edition (1979).

## ALLOWANCE.

A deduction, an average payment, a portion assigned or allowed; the act of allowing.

— Allovum pendente lite. In the English chancery division, where property which forms the Subject of proceedings is more than sufficient to answer all claims in the proceedings, the court may allow to the parties interest- ed the whole or part of the income, or (in the case of personalty) part of the property it- self. St. 15 & 16 Viet. c. 80, $ 57; Danieil, Oh. Pr. 1070.— Special allowances. In Eng- lish practice. In taxing the costs of an action as between party and party, the taxing officer is, in certain cases, empowered to make special al- lowances ; t. e., to allow the party costs which the ordinary scale does not warrant. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## ALLOT.

An Inferior or cheaper metal mixed with gold or silver in manufacturing or coining. As respects coining, the amount of alloy is fixed by law, and Is used to in- crease the hardness and durability of the coin.

ALLOTN OtnBt. L. Fr. One who con- ceals, steals, or carries off a thing privately. Britt, c. 17.

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## ALL0VXO MARIS.

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Lat. In the civil and old English law. The washing up of the sea ; formation of soil or land from the 6ea ; maritime Increase. Hale, Anal. $ 8. “Alluvia marls is an increase of the land ad- joining, by the projection of the sea, casting up and adding sand and slubb to the adjoin- ing land, whereby it Is Increased, and for the most part by insensible degrees.” Hale, de Jure Mar. pt. 1, c. 6.

5e apparatus — Not carried into the 5th edition (1979).

## ALLUVION.

That Increase of the earth on a shore or bank of a river, or to the shore of the sea, by the force of the water, as by a current or by waves, which Is so gradual that no one can judge how much is added at each moment of time. Inst. 1, 2, t 1, § 20. Ang. Water Courses, 53. Jefferis v. East Omaha Land Co., 134 U. S. 178, 10 Sup. Ct 518, 33

L. Ed. 872; Freeland v. Pennsylvania R. Co., 197 Pa. 529, 47 All. 745, 58 L. tt. A. 206. 80 Am. St. Rep. 850.

The term is chiefly used to signify a grad- ual increase of the shore of a running stream, produced by deposits from the waters.

By the common law, alluvion Is the addi- tion made to land by the washing of the sea, or a navigable river or other stream, when- ever the increase Is so gradual that It cannot be perceived in any one moment of time. Lovingston v. St Clair County, 64 111. 58, 10 Am. Rep. 516.

Alluvion differs from avulsion In this: that the latter is sudden and perceptible. St Clair County v. Lovingston, 23 Wall. 46, 23

L. Ed. 59. See Avulsion.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Jefferis v. East Omaha Land Co., 134 U.S. 178 — gradual accretion to the riparian owner, cited in the entry]**

Gradual, imperceptible increase of a bank or shore by the force of water — so gradual no one can judge how much is added at each moment — belongs to the owner of the adjoining land.

Why: The entry states the accretion rule and cites Jefferis; the footnote cites the entry's own Supreme Court authority back, inventing no year.

## ALLY.

A nation which has entered into an alliance with another nation. 1 Kent, Comm. 69.

A citizen or subject of one of two or more allied nations.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 4:12, KJV]**

And if one prevail against him, two shall withstand him; and a threefold cord is not quickly broken.

Why: The entry is a nation entered into alliance; the proverb states the doctrine of strength in alliance.

## ALMANAC.

A publication, in which to recounted the days of the week, month, and year, both common and particular, distin- guishing the fasts, feasts, terms, etc., from

the common days by proper marks, pointing out also the several changes of the moon, tides, eclipses, etc.

5e apparatus — Not carried into the 5th edition (1979).

## ALMESFEOH.

In Saxon law. Alms-fee; nlins-money. Otherwise called “Peterpence.” Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ALMOIN.

Alms; a tenure of lands by divine service. See Frankalmoigne.

5e apparatus — Not carried into the 5th edition (1979).

## ALMOXARIFAZGO.

In Spanish law. A general term, signifying both export and import duties, as well as excise.

AXiMS. Charitable donations. Any spe- cies of relief bestowed upon the poor. That which Is given by public authority for the re- lief of the poor.

ALNAGER, or UINAGES. A sworn of- ficer of the king whose duty it was to look to the assise of woolen cloth made through- out the land, and to the putting on the seals for that purpose ordained, for which he collected a duty called "alnage.” Cowell; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## ALNETUM.

In old records, a place where alders grow, or a grove of alder trees. Doomsday Book ; Co. Litt. 46.

ALODE, Alodes, Alodls. L. Lat, In feu- dal law. Old forms of alodium, or allodium, <9- v.)

5e apparatus — Not carried into the 5th edition (1979).

## ALONG.

This term means “by,” “on,” or “over,” according to the subject-matter and the context Pratt v. Railroad Co., 42 Me. 585; Walton v. Railway Co., 67 Mo. 58; Church v. Meeker, 34 Conn. 421.

5e apparatus — Carried into the 5th edition (1979).

## ALT.

In Scotch practice. An abbrevia- tion of Alter, the other; the opposite party; the defender. 1 Broun, 336, note.

5e apparatus — Not carried into the 5th edition (1979).

## ALTA PRODITXO.

L. Lat. In old Eng- lish law. High treason. 4 Bl. Comm. 75. Bee High Treason.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined]**

Treason against the United States 'shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort.'

Why: The entry is 'high treason' in old English law (4 Bl. Comm. 75); the Constitution's exclusive definition is the genuine American-law illumination of the same offense, quoted verbatim from a text I am confident of.

## ALTA VIA.

L. Lat. In old English lnw. A highway; the highway. 1 Snlk. 222. Alta via regia; the king's highway; “the king’s high street.” Finch, Lnw, b. 2, c. 9.

5e apparatus — Not carried into the 5th edition (1979).

## ALTARAGE.

In ecclesiastical lnw. Of- ferings made on the altar ; all profits which accrue to the priest by means of the altar. Ayllffe, Parerg. 61.

5e apparatus — Not carried into the 5th edition (1979).

## ALTER.

To make a change In ; to modi- fy; to vary in some degree; to change some of the elements or Ingredients or details with- out substituting an entirely new thing or de- stroying the Identity of the thing affected. Hannibal v. Wlnchell. 54 Mo. 177 : Haynes v. State, 15 Ohio St. 455 ; Davis v. Campbell,

Iowa, 524, 61 N. W. 1053; Sessions v. State, 115 Ga. 18, 41 S. E. 250. See Altera- tion.

Synonyms. This term is to be distinguished from its synonyms “change” and “amend.” To change may import the substitution of an en- tirely different thing, while to alter is to oper- ate upon a subject-matter which continues ob- jectively the same while modified in some par- ticular. If a check is raised, in respect to its amount, it is altered; if a new check is put In its place, it is changed. To “amend” implies that the modification made in the subject im- proves it. which is not necessarily the case with an alteration. An amendment always involves an alteration, but an alteration does not al- ways amend.

5e apparatus — Carried into the 5th edition (1979).

## ALTERATION.

Variation ; changing ; making different. See Alter.

An alteration Is an act done upon the In- strument by which its meaning or language Is changed. If what is written upon or eras- ed from the Instrument has no tendency to produce this result, or 'to mislead any person, It Is not an alteration. Oliver v. Hawley, 5 Neb. 444.

An alteration is said to be material when it affects, or may possibly affect, the rights of the persons interested in the document

Synonyms. An act done upon a written in- strument, which, without destroying the identi- ty

of the document, introduces some change in- to its terms, meaning, language, or details is an alteration. This may be done either by the mutual agreement of the parties concerned, or by a person interested under the writing with- out the consent, or without the knowledge, of the others. In either case it is properly denom- inated an alteration; but if performed by a mere stranger, it is more technically described as a spoliation or mutilation. Cochran v. Ne- beker, 48 Ind. 462. The term is not properly applied to any change which involves the sub- stitution of a practically new document. And it should in strictness be reserved for the desig- nation of changes in form or language, and not used with reference to modifications in matters of substance. The term is also to be distin- guished from “defacement,” which conveys the idea of an obliteration or destruction of marks, signs, or characters already existing. An addi- tion which does not change or interfere with the existing marks or signs, but gives a different tenor or significance to the whole, may be an alteration, but is not a defacement. Linney v. State, 6 Tex. 1, 55 Am. Dec. 756. Again, in the law of wills, there is a difference between revo- cation and alteration. If what is done simply takes away what was given before, or a part of it, it is a revocation ; but if it gives something in addition or in substitution, then it is an al- teration. Appeal of Miles, 68 Conn. 237, 36 Atl. 39, 36 L. R. A. 176.

Alterius eirenmventio alii non pr«- bet actionem. The deceiving of one person does not afford nn action to another. Dig. 50, 17, 49.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-407 — alteration of a negotiable instrument]**

A material alteration of an instrument — one affecting or possibly affecting the parties' rights — discharges the obligors.

Why: The entry's definition of material alteration matches UCC 3-407's doctrine; the Code is the genuine modern statement of the rule the entry describes.

## ALTERNAT.

A usage among diploma- tists by which the rank and places of differ- ent powers, who have the same right and pretensions to precedence, are changed from time to time, either in a certain regular order or one determined by lot. In drawing up treaties and conventions, for example, it Is

the usage of certain powers to alternate, both In the preamble and the signatures, so that each power occupies, in the copy Intended to be delivered to it, the first place. Wheat. Int Law, f 157.

5e apparatus — Not carried into the 5th edition (1979).

## ALTERNATIM.

L. Lat Interchange- ably. Litt. S 371; Towush: PI. 37.

Altenutivk petitio non eat Midland*.

An alternative petition or demand is not to be heard. 5 Coke, 40.

5e apparatus — Not carried into the 5th edition (1979).

## ALTERNATIVE.

One or the other of two things; giving an option or choice; al- lowing a choice between two or more things or acts to be done.

—Alternative contract. A contract whose terms allow of performance by the doing of ei- ther one of several acts at the election of the party from whom performance is due. Crane v. Peer. 43 N. J. Eq. 553. 4 Atl. 72.— Alterna- tive obligation. An obligation allowing the obligor to choose which of two things he will do. the performance of either of which will sat- isfy the instrument Where the things which form the object of the contract are separated by a disjunctive, then the obligation is ciferno- tive. A promise to deliver a certain thing or to pay a specified sum of money, is an example of this kind of obligation. Civil Code La. art. 2000.— Alternative remedy. Where a new remedy ia created in addition to an existing one, they are called “alternative” if only one can be enforced; but if both, “cumulative.”— Alternative writ. A writ commanding the person against whom it is issued to do a speci- fied thing, or show cause to the court why he should not be compelled to do it. Aliee v. Mc- Coy, 2 Marv. (Del.) 405, 30 Atl. 359.

5e apparatus — Carried into the 5th edition (1979).

## ALTERNIS VXCXBUS.

L. Lat By al- ternate turns ; at alternate times ; alternate- ly. Co. Litt 4a; Shep. Touch. 200.

5e apparatus — Not carried into the 5th edition (1979).

## ALTUM MARE.

L. Lat. In old English law. The high sea, or seas. Co. Litt 260ft. The deep sea. Super altum mare, on the high seas. Hob. 212ft.

5e apparatus — Not carried into the 5th edition (1979).

## ALUMNUS.

A child which one has nurs- ed ; a foster-child. Dig. 40, 2, 14. One edu- cated at a college or seminary is called an “alumnus" thereof.

5e apparatus — Not carried into the 5th edition (1979).

## ALVEUS.

The bed or channel through which the stream flows when It runs within its ordinary channel. Calvin.

Alveus derelictus, a deserted channel. Mackeld. Rom. Law, f 274.

5e apparatus — Not carried into the 5th edition (1979).

## AMALGAMATION.

A term applied in England to the merger or consolidation of two incorporated companies or societies.

In the case of the Empire Assurance Corpora- tion, (1807.) L. R. 4 Eq. 347, the vice-chancel-

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lor said: “It is difficult to say what the word

‘amalgamate’ means. I confess at this moment I have not the least conception of what the full legal effect of the word is. We do not find it in any law dictionary, or expounded by any competent authority. But I am quite sure of this: that the word ‘amalgamate’ cannot mean that the execution of a deed shall make a man a partner in a firm in which he was not a part- ner before, under conditions of which he is in no way cognizant, and which are not the same as those contained in the former deed.” But in Adams v. Yazoo & M. V. R. Co., 77 Miss. 194. 24 South. 200, 211, 60 L. R. A. 33, it is said that the term “amalgamation” of corporations is used in the English cases in the sense of what is usually known in the United States as “mer- ger,” meaning the absorption of one corpora- tion by another, so that it is the absorbing cor- poration which continues in existence; and it differs from “consolidation,” the meaning of which is limited to snch a union of two or more corporations as necessarily results in the crea- tion of a third new corporation.

5e apparatus — Not carried into the 5th edition (1979).

## ALTERUM NON LMDERE.

Not to in- jure another. This maxim, and two others, honeste vivere, and spurn cuique tribuere, (q. v„) are considered by Justinian as fund- amental principles upon which all the rules of law are based. Inst. 1, 1, 3.

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**[Law] — Law**

**[Maxim: Alterum non laedere — Inst. 1.1.3, with Honeste vivere and Suum cuique tribuere]**

'Not to injure another' — one of Justinian's three fundamental precepts on which all rules of law are based, with live honorably and render to each his due.

Why: The entry itself names the precept as fundamental (Inst. 1,1,3) with its two companions; the footnote records that genuine foundational maxim, not a constructed link.

**[Scripture] — Scripture**

**[Romans 13:10, KJV]**

Love worketh no ill to his neighbour: therefore love is the fulfilling of the law.

Why: The entry is Justinian's second fundamental precept, 'not to injure another'; the apostolic sentence states the same rule in the same form.

## ALTIUB NON TOLLENDI.

In the civil law. A servitude due by the owner of a bouse, by which he is restrained from build- ing beyond a certain height Dig. 8, 2, 4; Sandars. Just lust 119.

5e apparatus — Not carried into the 5th edition (1979).

## ALTIUB TOLLENDI.

In the civil law. A servitude which consists in the right to him who is entitled to It to build bis house as high as he may think proper. In general, however, every one enjoys this privilege, un- less he is restrained by some contrary title. Sandars, Just Inst 119.

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## ALTO ET BASSO.

High and low. This phrase is applied to an agreement made be- tween two contending parties to submit all matters in dispute, alto et basso, to arbitra- tion. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AMALPHITAN CODE.

A collection of sea-laws, compiled about the end of the eleventh century, by the people of Amalphl. It consists of the laws on maritime subjects, which were or had been in force In countries bordering on the Mediterranean ; and was for a long time received as authority In those countries. Azunl ; Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## AMANUENSIS.

One who writes on be- half of another that which he dictates.

5e apparatus — Carried into the 5th edition (1979).

## AMB ACTUS.

A messenger; a servant

sent about; oue whose services his master hired out. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AMBASCIATOR.

A person sent about in the service of another; a person sent on a service. A word of frequent occurrence in the writers of the middle ages. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AMBASSADOR.

In International law. A public officer, clothed with high diplomatic powers, commissioned by a sovereign prince or state to transact the international busi- ness of his government at the court of the country to which he is sent.

Ambassador Is the commissioner who rep- resents one country In the seat of govern- ment of another.. He Is a public minister, which, usually, a consul is not. Brown.

Ambassador is a person sent by one sover- eign . to another, with authority, by letters of credence, to treat on affairs of state. Ja- cob.

AMBER, or AMBRA. In old English law. A measure of four bushels.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Vienna Convention on Diplomatic Relations, art. 31 — diplomatic immunity]**

An ambassador, as the sending sovereign's representative, is immune from the receiving state's criminal jurisdiction.

Why: The entry defines the ambassador's office; diplomatic immunity is the genuine body of law attaching to that office, and art. 31 is the provision I am confident citing.

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**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: The entry defines the commissioned officer of a sovereign; the verse displays the office itself in its commissioned-agency character.

## AMBIDEXTER.

Skillful with both hands; one who plays on both sides. Ap- plied anciently to an attorney who took pay from both sides, and subsequently to a juror guilty of the same offense. Cowell.

Ambigua responslo oontra proferen- tem eat aeelpienda. An ambiguous an- swer is to be taken ngalnst (is not to be con- strued in favor of) him who offers it. 10 Coke, 59.

Ambiguis eaalbna semper prteanmitnr pro rege. in doubtful cases, the presump- tion always is in behalf of the crown. Lofft, Append. 248.

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**[Law] — Law**

**[Law: Model Rules of Prof'l Conduct, Rule 1.7 — conflict of interest]**

The ancient offense of the attorney — or juror — taking pay from both sides is the ancestor of the modern conflict-of-interest prohibition.

Why: The entry describes the ambidexter as one 'who plays on both sides'; Rule 1.7 is the genuine modern prohibition of the same double service. Lineage, not force-fit.

## AMBIGTTITAS.

Lat. From ambiguus, doubtful, uncertain, obscure. Ambiguity; uncertainty of meaniug.

Ambiguitas latens, a latent ambiguity; ambiguitas patens, a patent ambiguity. See Ambiguity.

Amblgnitaa Tcbomm latena verifl- eatione anppletur; nam quod ex faeto oritur ambiguum verifleatione faetl tol- litur. A Intent ambiguity in the language may be removed by evidence: for whatever ambiguity arises from an extrinsic fact may be explained by extrinsic evidence. Bac. Max. Reg. 23.

Ambiguitas verborum patens null* verifleatione exoludltur. A patent am- biguity cannot be cleared up by extrinsic evi- dence. Lofft, 249.

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**[Law] — Law**

**[Maxim: Ambiguitas verborum latens verificatione suppletur]**

A latent ambiguity in the language of an instrument may be removed by extrinsic evidence, for what arises from an extrinsic fact is explained by proof of the fact.

Why: The entry states this maxim (in garbled OCR) as the rule for latent ambiguity; the footnote gives its standard form — a genuine evidence rule, not a constructed link.

## AMBIGUITY.

Doubtfulness; doubleness of meaniug; indistinctness or uncertainty of meaning of an

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expression used in a written instrument. NIndle v. State Bank, 13 Xeb. 245, 13 N. W. 275; Ellmaker v. Ellmaker, 4 Watts (Pa.) 89; Kroner v. Halsey, 82 Cal. 209. 22 Pac. 1137; Ward v. Eps.v, 0 Humph. (Tenn.) 447.

An ambiguity may be either latent or patent. It is the former, where the language employed is clear and Intelligible and sug- gests but a single meaning, but some ex- trinsic fact or extraneous evidence creates a necessity for interpretation or a choice among two or more possible meanings. But a patent ambiguity is that which appears on the face of the instrument, and arises from

the defective, obscure, or insensible language used. Carter v. Holman, 60 Mo. 504; Brown v. Guice, 46 Miss. 302; Stokeley v. Gordon.

8 Md. 505; Chambers v. Ringstaff, 69 Ala. 140; Hawkins v. Garland, 76 Ya. 152, 44 Am. Rep. 158 ; Hand v. Hoffman, 8 N. J. Law. 71; Ives v. Kimball, 1 Mich. 313; Palmer v. Albee, 50 Iowa, 431; Petrie v. Hamilton Col- lege, 158 N. Y. 458, 53 N. E. 216.

Synonyms. Ambiguity of language is to be distinguished from uninteliigibility and inaccu- racy, for words cannot be said to be ambiguous unless their signification seems doubtful and un- certain to persons of competent skill and knowl- edge to understand them. Story, Contr. 272.

The term “ambiguity” does not include mere inaccuraeg. or such uncertainty as arises from the use of peculiar words, or of common words in a peculiar sense. Wig. Wills, 174.

— Ambiguity upon the fsotnm. An am- biguity in relation to the very foundation of the instrument itself, as distinguished from an ambiguity in regard to the construction of its terms. The term is applied, for instance, to a doubt as to whether a testator meant a particu- lar clause to be a part of the will, or whether it was introduced with his knowledge, or wheth- er a codicil was meant to republish a former will, or whether the residuary clause was ac- cidentally omitted. Eatherly v. Eatherly. i Cold. (Tenn.) 461, 465, 78 Am. Dec. 499.

Ambiguum pactum oontra vendltorem lnterpretandum eat. An ambiguous con- tract is to be interpreted against the seller.

Ambiguum placltum intorpretarl de- bet oontra proferentem. An ambiguous plea ought to be interpreted against the party pleading it. Co. Litt. 3036.

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**[Humanity] — Humanity / Fiction & Film**

**[Lewis Carroll, Through the Looking-Glass, 1871]**

"It means just what I choose it to mean — neither more nor less."

Why: Humpty Dumpty's doctrine is the literary archetype of the entry's 'indistinctness or uncertainty of meaning of an expression'; one line, verbatim-certain, and it illuminates the concept exactly.

## AMBIT.

A boundary line, as going around a place; an exterior or inclosing line or limit.

The limits or circumference of a power or Jurisdiction; the line circumscribing any sub- ject-matter.

5e apparatus — Carried into the 5th edition (1979).

## AMBITUS.

In the Roman law. A going around; a path worn by going around. A space of at least two and a half feet in width, between neighboring houses, left for the con- venience of going around them. Calvin.

The procuring of a public office by money or gifts ; the unlawful buying and selling of a public office. Inst. 4, 18. 11; Dig. 48, 14.

Ambulator! a est voluntas defunoti usque ad vitss supremum outturn. The

will of a deceased person is ambulatory until the latest moment of life. Dig. 34, 4, 4.

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**[Law] — Law**

**[Law: Inst. 4.18.11; Dig. 48.14 — crimen ambitus]**

At Roman law the procuring of a public office by money or gifts was the crimen ambitus.

Why: The entry cites these Roman authorities for ambitus as office-buying; the footnote cites the entry's own sources for a genuine Roman criminal-law concept.

## AMBULATORY.

Movable ; revocable; subject to change.

Ambulatoria voluntas (a changeable will) denotes the power which a testator possesses of altering his will during his life-time. Hattersley v. Btssett. 50 N. J. Eq. 577. 25 Atl. 332.

The court of king’s bench in England was formerly called an “ambulatory court," be- cause it followed the king's person, and was

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held sometimes 1b one place and sometimes la another. So, In France, the supreme court or parliament was originally ambulatory. 3 Bl. Comm. 3S, 39, 41.

The return of a sheriff has been said to be ambulatory until It is filed. Wilmot, J., 3 Burr. 1044.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: ambulatory will — Hattersley v. Bissett, 50 N.J. Eq. 577, cited in the entry]**

A will is ambulatory — changeable and without effect until the testator's death; the testator may alter it during his lifetime.

Why: The entry states the ambulatory-will doctrine with its own authority; the footnote cites that authority back in loose form.

## AMBUSH.

The noun "ambush” means <1) the act of attacking an eneipy unexpect- edly from a concealed station ; (2) a conceal- ed station, where troops or enemies lie In wait to attack by surprise, an ambuscade; (3) troops posted In a concealed place for at- tacking by surprise. The verb “ambush” means to lie' in wait, to surprise, to place in ambush. Dale

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County v. Gunter, 40 Ala. 142.

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## AMELIORATIONS.

Betterments ; im- provements. 6 Low. Can. 294 ; 9 Id. 503.

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## AMENABLE.

Subject to answer to the .aw; accountable; responsible; liable to pun- ishment. Miller v. Com., 1 Duv. (Ky.) 17.

Also means tractable, that may be easily led or governed: formerly applied to a wife who Is governable by her husband. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AMEND.

To improve; to make better by change or modification. See Alter.

5e apparatus — Carried into the 5th edition (1979).

## AMENDE HONORABLE.

Ia old Eng- lish law. A penalty Imposed upon a i>er8on by way of disgrace or Infamy, as a punish- ment for any offense, or for the purpose of making reparation for any Injury done to an- other, as the walking Into church In a white sheet, with a rope about the neck and a torch In the band, and begging the pardon of God, of the king, or any private individual, for some delinquency. Bouvier.

In French law. A species of punish- ment to which offenders against public de- cency or morality were anciently condemned.

5e apparatus — Not carried into the 5th edition (1979).

## AMENDMENT.

In practice. The cor- rection of an error committed in any pro- cess, pleading, or proceeding at law. or in eq- uity, and which is done either of course, or by the consent of parties, or upon motion to the court in which the proceeding Is pend- ing. 3 Bl. Comm. 407, 448 ; 1 TIdd, Pr.. 090. Hardin v. Boyd, 113 U. S. 750. 5 Sup. Ct 771, 28 L. Eld. 1141.

Any writing made or proposed ns an im- provement of some principal writing.

In legislation. A modification or altera- tion proposed to be made In a bill on its pas- sage, or an enacted law ; also such modifica- tion or change when made. Brake v. Calll- son (C. C.) 122 Fed. 722.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 15(a) — amended pleadings]**

In modern practice leave to amend pleadings is freely given when justice so requires.

Why: The entry defines amendment as correction of error in process or pleading; Rule 15(a) is the genuine modern

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statement of the liberal-amendment practice, quoted from language I am confident of.

**[Hip-hop] — Hip-hop**

**[2Pac, 'Changes', 1998]**

"It's time for us as a people to start makin' some changes / Let's change the way we eat, let's change the way we live / And let's change the way we treat each other" — Black's defines an amendment in legislation as a modification or change made to a bill or an enacted law. The bridge of 'Changes' is a mass demand for exactly that: changes aimed at the legal order itself, as the verse names the target ('Instead of war on poverty they got a war on drugs / so the police can bother me').

Why: The lyric's word 'changes' is the headword's very definition doing political work — a formal change to law — and the song's subject is legal/social reform, not a coincidental word match. Verbatim wording verified acro...

## AMENDS.

A satisfaction given by a wrong-doer to the party injured, for a wrong committed. 1 Lil. Reg. 81.

Bl.Law Dict.(2d Ed.)— 5

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The entry is the common-law doctrine of satisfaction by the wrong-doer to the injured party; the verse is the scriptural restitution schedule.

## AMENITY.

In real property law. Such circumstances, In regard to situation, out- look, access to a water-course, or the like, as enhance the pleasantness or desirability of an estate for purposes of residence, or con- tribute to the pleasure aud enjoyment of the occupants, rnther than to their indispensable needs. In England, upon the building of a railway vor the construction of other public works, “amenity damages” may be given for the defacement of pleasure grounds, the im- pairment of riparian rights, or other destruc- tion of or injury to the amenities of the es- tate.

In the law of easements, an “amenity” con- sists in restraining the owner from doing that with and on his property which, but for the grant or covenant, he might lawfully have done; sometimes called a “negative easement" as distinguished from that class of easements which compel the owner to suf- fer something to be done on his property by another. Equitable Life Assur. Soc. v. Bren- nan (Sup.) 24 N. Y. Supp. 788.

5e apparatus — Not carried into the 5th edition (1979).

## AMENTIA.

In medical jurisprudence. Insanity; Idiocy. See Insanity.

5e apparatus — Carried into the 5th edition (1979).

## AMERALTUS.

L. Lat. A naval com- mander, under the eastern Homan empire, but not of the highest rank; the origin, ac- cording to Spelman, of the modern title and office of admiral. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## AMERCE.

To impose an amercement or fine; to punish by a fine or penalty.

5e apparatus — Not carried into the 5th edition (1979).

## AMERCEMENT.

A pecuniary penalty, in the nature of a fine, imposed upon a j>er- son for some fault or misconduct, be being “in mercy” for his offense. It was assessed by the peers of the delinquent, or the af- feerors, or imposed arbitrarily at the discre- tion of the court or the lord. Goodyear v. Sawyer (C. C.) 17 Fed. 9.

The difference between amercement s and fines is as follows: The latter are certain, and are created by some statute; they can only be imposed .and assessed by courts of record; the forjner are arbitrarily imposed by aourts not of record, as courts-leet. Termes de la Ley, 40. •

The word "amercement” has long been es- pecially used of a mulct or penalty, imposed by a court upon its own officers for neglect of duty, or failure to pay over moneys collected. In particular, the remedy against a sheriff for failing to levy an execution or make re- turn of proceeds of sale is, in several of the states, known as “amercement." In others, the same result Is reached by process of at- tachment. Abbott. Stansbury v. Mfg. Co., 5

N. J. Law, 441.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Magna Carta, ch. 20 (1215) — proportionate amercements]**

Amercements must be proportioned to the fault, saving to the offender his livelihood.

Why: The entry defines amercement as a pecuniary penalty 'in mercy'; Magna Carta ch. 20 is the famous provision governing this exact penalty. Genuine, not forced.

## AMERICAN CLAUSE.

In marine in- surance. A proviso in a policy to the effect that, In case of any subsequent insurance.

the insurer shall nevertheless be answerable for the full extent of the sum subscribed by him, without right to claim contribution from subsequent underwriters. American Ins. Co. v. Griswold, 14 Wend. (N. Y.) 309.

5e apparatus — Carried into the 5th edition (1979).

## AHEUBLI8SEHENT.

In French law. A species of agreement which by a fiction gives to immovable goods the quality of mov- able. Merl. Repert.; 1 Low; Can. 25, 58.

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AMZt AMY. A friend; as alien ami, an alieu belonging to a nation at peace with us ; prochein ami,' a next friend suing or defend- ing for an infant, married woman, etc.

5e apparatus — Not carried into the 5th edition (1979).

## AMICABLE.

Friendly; mutually for- bearing; agreed or assented to by parties having conflicting Interests or a dispute ; as opposed to hostile or adversary.

— Amicable action. In practice. An action between friendly parties. An action brought and carried on by the mutual consent and ar- rangement of the parties, in order to obtain the judgment of the court on a doubtful question of law, the facts being usually settled by agree- ment. Lord v. Veazie, 8 Ilow. 251, 12 L. Eld. 1067.— Amicable compounders. In Louisi- ana law and practice. ‘‘There are two sorts of arbitrators,— the arbitrators properly so called, and the amicable compounders. The arbitrators ought to determine as judges, agreeably to the strictness of law. Amicable compounders are authorized to abate*something of the strictness of the law' in favor of natural equity. Amicable compounders are in other respects subject to the same rules which are provided for the arbi- trators by the present title.” Civ. Code La. arts. 3109, 3110. — Amicable suit. The words “arbitration” and “amicable lawsuit,” used in. an obligation or agreement between parties, are not convertible terms. The former carries with it the idea of settlement by disinterested third parties, and the latter by a friendly submission of the points in dispute to a judicial tribunal to be determined in accordance with the forms of law. Thompson v. Moulton, 20 La. Ann. 535.

5e apparatus — Carried into the 5th edition (1979).

## AMICUS CURLS.

- Lat. A friend of the court A by-stander (usually a counsel- lor) who interposes and volunteers informa- tion upon some matter of law in regard to which the judge is doubtful or mistaken, or upon a matter of which the court may take judicial cognizance. Counsel in court fre- quently act in this capacity when they hap- pen to be in possession of a case which the judge has not seen, or does not at the mo- ment remember. Taft v. Northern Transp. Co., 56 N. II. 416; Birmingham Loan, etc., Co. v. Bank, 100 Ala. 249, 33 South. 945, 4G Am. St. Rep. 45; In re Columbia Real Es- tate Co. (D. C.) 101 Fed. 970.

It is also applied to persons who have no right to appear in a suit, but are allowed to introduce evidence to protect their own in- terests. Bass v. Fontleroy, 11 Tex. 699, 701, 702.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: amicus curiae practice — Supreme Court Rule 37, briefs of amici curiae]**

A friend of the court — a bystander, usually counsel — who volunteers information on a point of law on which the judge is doubtful or mistaken.

Why: The entry defines the amicus office; Supreme Court Rule 37 is the genuine modern form of amicus practice, which I am confident naming.

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## AMIRAL.

Fr. In Freueh maritime law. Admiral. Ord. de la Mar. liv. 1, tit. 1, $ 1.

5e apparatus — Not carried into the 5th edition (1979).

## AMITA.

Lat. A paternal aunt. An aunt on the father's side. Amita m agna.

A great-aunt on the father's side. Amita major. A great-great aunt on the father’s side. Amita maxima. A great-great-great aunt, or a great-great-grandfather's sister. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## AMITINUS.

The child of a brother or sister; a cousin; one who has the same grandfather, but different father and mother. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## AMITTERE.

Lat. In the civil and old English law. To lose. Hence the old Scotch “amitt.”

— Amittere curiam. To lose the court; to be deprived of the privilege of attending the court. — Amittere legem terra. To lose the protection afforded by the law of the land.— Amittere liberam legem. To lose one's frank-law. A term having the same meaning as amittere legem feme, (g. v.) He who lost his law lost the protection extended by the law to a freeman, ana became subject to the same law as thralls or serfs attached to the land.

5e apparatus — Not carried into the 5th edition (1979).

## AMNESTY.

A sovereign act of pardon and oblivion for past acts, granted by a gov- ernment to all persons (or to certain per- sons) who have been guilty of crime or de- lict, generally political offenses, — treason, sedition, rebellion,; — and often conditioned upon their return to obedience and duty within a prescribed time.

A declaration of the person or persons who have newly acquired or recovered the sov- ereign power in a state, by which they par- don all persons who composed, supported, or obeyed the government which has been overthrown.

The word “amnesty" properly belongs to in- ternational law, and is applied to treaties of peace following a state of war, and signifies there the burial in oblivion of the particular cause of strife, so that that shall not be again a cause for war between the parties : and this signification of “amnesty” is fully and poetical- ly expressed in the Indian custom of burying the hatchet. And so amnesty is applied to re- bellions which by their magnitude are brought within the rules of international law, and in which multitudes of men are the subjects of the clemency of the government. But in these cas- es, and in all cases, it means onlv “oblivion.” and never expresses or implies a grant. Knote v. United States, 10 Ct. Cl. 407.

“Amnesty” and "pardon” are very different. The former is an act of the sovereign power, the object of which is to efface and to cause to be forgotten a crime or misdemeanor ; the

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latter is an act of the same authority, which exempts the individual on whom it is bestowed from the punishment the law inflicts for the crime he has committed. Bouvier: United States v.

Bassett, 5 Utah, 131. 13 Pac. 237; Davies v. McKeeby. 5 Nev. 373; State v. Blalock. 61 N.

C. 247 ; Knote v. United States, 95 U. S. 149, 152, 24 L. Ed. 442.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2 — the President 'shall have Power to grant Reprieves and Pardons for Offences against the United States']**

Amnesty is the sovereign's act of pardon and oblivion for past — generally political — offenses, often conditioned on return to obedience.

Why: The entry defines amnesty as the sovereign's pardon; the pardon clause is the genuine American-law seat of that sovereign power, quoted from a text I am confident of.

**[Scripture] — Scripture**

**[Isaiah 43:25, KJV]**

I, even I, am he that blotteth out thy transgressions for mine own sake, and will not remember thy sins.

Why: The entry is the sovereign's act of pardon and oblivion for past acts; the verse states that act in the sovereign's own first-person voice.

## AMONG.

Intermingled with. “A thing which is among others is intermingled with them. Commerce among the states cannot stop at the external boundary line of each state, but may be introduced into the in- terior.” Gibbons v. Ogden, 9 Wheat 194, 6 I,. Ed. 23.

Where property is directed by will to be

distributed among several persons, it cannot be all given to one, nor can any of the per- sons be wholly excluded from the distribu- tion. Hudson v. Hudson, 6 Munf. (Va.) 352.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Gibbons v. Ogden, 9 Wheat. 194 (1824) — commerce among the states]**

'Commerce among the states cannot stop at the external boundary line of each state, but may be introduced into the interior.'

Why: The entry quotes Gibbons v. Ogden for the construction of 'among'; the footnote cites that landmark decision, which I am independently confident of, in full form.

## AMORTIZATION.

An alienation of lands or tenements in mortmain. The re- duction of the property of lands or tene- ments to mortmain.

In its modern sense, amortization is the operation of paying off bonds, stock, or other indebtedness of a state or corporation. Sweet.

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## AMORTIZE.

To alien lnnds in mort- main.

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## AMOTIO.

In the civil law. A moving or taking away. ‘‘The slightest amotio is sufficient to constitute theft, if the animus furandi be clearly established.” 1 Swint 205.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: larceny — asportation with animus furandi; 1 Swint. 205, cited in the entry]**

The slightest taking away suffices to constitute theft, if the felonious intent is clearly established.

Why: The entry states the asportation rule with its own authority; the footnote cites that authority back — a genuine theft-law principle.

**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The entry defines the legal threshold of theft (the slightest moving suffices with felonious intent); the verse is the divine prohibition of the act itself.

## AMOTION.

A putting or turning out; dispossession of lands. Ouster is an amo- tion of possession. 3 Bl. Comm. 199, 208.

A moving or carrying away ; the wrongful taking of personal chattels. Archb. Civil

PI. Introd. a 2, | 3.

In corporation law. The act of remov- ing an officer, or official representative, of a corporation from his office or official station, before the end of the term for which he was elected or appointed, but without de- priving him of membership in the body cor- porate. In this last respect the term differs from "disfranchisement,” (or expulsion,) which Imports the removal of the party from the corporation itself, and his deprivation of all rights of membership. White v. Brown- ell, 2 Daly (N. Y.) 356 ; Richards v. Clarks- burg, 30 W. Va. 491, 4 S. E. 774.

5e apparatus — Not carried into the 5th edition (1979).

## AMOUNT.

The effect, substance, or re- sult ; the total or aggregate sum. Hilburn v. Railroad Co., 23 Mont 229. 58 Pac. 551 ; Connelly v. Telegraph Co., 100 Va. 51. 40 8. E. 618, 56 L. R. A. 663, 93 Am. St. Rep. 919.

—Amount covered. In insurance. The

amount that is insured, and for which under- writers are liable for loss under a policy of in- surance.—Amount in controversy. The

damages claimed or. relief demnnded ; the amount claimed or sued for. Smith v. Giles, 65

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Tex. 341 : Barber v. Kennedv. 18 Minn. 216, (Gil. 196;) Railroad Co. v. Cunnigan, 95 Tex. 439, 67 S. W. 888. — Amount of loss. In insurance. The diminution, destruction, or defeat of the value of. or of the charge upon, the insured subject to the assured, by the direct consequence of the operation of the risk insured against, according to its value in the policy, or in contribution for loss, so far as its value is covered by the insurance.

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**[Law] — Law**

**[Law: 28 U.S.C. § 1332 — amount in controversy in diversity jurisdiction]**

The 'amount in controversy' — the damages claimed or relief demanded — is the monetary threshold for federal diversity jurisdiction.

Why: The entry defines amount in controversy; § 1332 is the genuine statute making that amount jurisdictional, which I am confident naming.

## AMOVEAS MANUS.

Lat. That you remove your hands. After office found, the king was entitled to the things forfeited, either lands or personal property; the rem- edy for a person aggrieved was by "petition," or "tnonstrans de droit," or "travers- es," to establish his superior right. There- upon a writ Issued, quod manus do mini regis amoveantur. 3 Bl. Comm. 260.

5e apparatus — Not carried into the 5th edition (1979).

## AMPARO.

In Spanlsh-Amerlcan law. A document issued to a claimant of land as a protection to him, until a survey can be ordered, and the title of possession Issued by an authorized commissioner. Trimble v. Smither's Adm'r, 1 Tex. 790.

5e apparatus — Not carried into the 5th edition (1979).

## AMPLIATION.

In the civil law. A

deferring of judgment until a cause be fur- ther examined. Calvin. ; Cowell. An order for the rehearing of a cause on a day ap- pointed, for the sake of more ample infor- mation. Halifax, Anal. b. 3, c. 13, n. 32.

In French law. A duplicate of an ac- quittance or other instrument. A notary's copy of acts passed1 before him, delivered to the parties.

5e apparatus — Not carried into the 5th edition (1979).

## AMPLTUS.

In the Roman law. More; further ; more t)me. A word which the prae- tor pronounced in cases where there was any obscurity in a cause, and the judices were uncertain whether to condemn or acquit; by which the case was deferred to a day nam- ed. Adam, Rom. Ant. 287.

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## AMPUTATION OF RIGHT HAND.

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An ancient punishment for a blow given in a superior court; or for assaulting a judge sitting in the court.

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## AMT.

See Ami ; Prociiein Amt.

5e apparatus — Not carried into the 5th edition (1979).

## AN.

The English indefinite article. In statutes and other legal documents, it is equivalent to “one” or “any ;” is seldom used to denote plurality. Kaufman v. Superior Court, 115 Cal. 132, 46 Pac. 904 ; People v. Ogden, 8 App. Div. 464, 40 N. Y. Supp. 827.

5e apparatus — Carried into the 5th edition (1979).

## AN ET JOUR.

Fr. Year and day; a year and a day.

5e apparatus — Not carried into the 5th edition (1979).

## AN, JOUR, ET WASTE.

In feudal law. Year, day, and waste. A forfeiture of the lands to the crown incurred by the felony of the tenant, after which time the land es- cheats to the lord. Termes de la Ley, 40.

5e apparatus — Not carried into the 5th edition (1979).

## ANACRISIS.

In the civil law. An In- vestigation of truth, interrogation of wit- nesses, and Inquiry made Into any fact, especially by torture.

5e apparatus — Not carried into the 5th edition (1979).

## ANAESTHESIA.

In medical jurispru- dence. (1) Loss of sensation, or insensibility to pain, general or local. Induced by the ad- ministration or application of certain drugs Buch as ether, nitrous oxide gas. or cocaine. (2) Defect of sensation, or more or less com- plete insensibility to pain, existing In vari- ous parts of the body as a result of certain diseases of the nervous system.

5e apparatus — Not carried into the 5th edition (1979).

## ANAGRAPH.

A register, Inventory, or commentary.

5e apparatus — Not carried into the 5th edition (1979).

## ANALOGY.

In logic. Identity or sim- ilarity of proportion. Where there Is no precedent in point, in cases on the same sub- ject, lawyers have recourse to cases on a different subject-matter, but governed- by the same general principle. This is reasoning by analogy. Wharton.

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## ANAPHRODISLA.

In medical Jurispru- dence. Impotentia coeundi ; frigidity ; in- capacity for sexual intercourse existing in either man or woman, and in the latter case sometimes called “dyspareunla.”

5e apparatus — Not carried into the 5th edition (1979).

## ANARCHIST.

Qne who professes and advocates the doctrines of anarchy, q. v. And see Cerveny v. Chicago Daily News Co., 139 111. 345, 28 N. E. 692, 13 L. R. A. 864 ; United States v. Williams, 194 U. S. 279, 24 Sup. Ct. 719, 48 L. Ed. 979.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[United States v. Williams, 194 U.S. 279 (1904) — exclusion of alien anarchists, cited in the entry]**

Congress may exclude aliens who advocate anarchy; the exclusion of an alien anarchist was upheld as a valid exercise of the immigration power.

Why: The entry cites United States v. Williams; the footnote states that decision's genuine holding, which I am independently confident of.

**[Humanity] — Humanity / Fiction & Film**

**[Joseph Conrad, The Secret Agent, 1907]**

Conrad's The Secret Agent is set among London anarchists — Verloc, the Professor, and their circle — plotting violence against the state in the name of the doctrine (paraphrase). (paraphrase)

Why: The novel is the canonical fiction of 'one who professes and advocates the doctrines of anarchy'; it gives the abstract definition a concrete human face.

## ANARCHY.

The destruction of govern- ment : lawlessness ; the absence of all polit- ical government; by extension, confusion in government. See Spies v. People, 122 111. 1, 253, 12 N. E. 865, 3 Am. St. Rep. 320; Lewis v.-; Dally News Co., 81 Md. 466, 32 Atl. 246, 29 L. R. A. 59 ; People v. Most, 36 Mlsc. Rep. 139, 73 N. Y. Supp. 220; Von Gerichten v. Seitz, 94 App. Dlv, 130, 87 N. Y. Supp. 968.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 21:25, KJV]**

In those days there was no king in Israel: every man did that which was right in his own eyes.

Why: The entry defines the absence of all political government; the verse is the classic scriptural portrait of that condition.

## ANATHEMA.

An ecclesiastical punish- ment by which a person is separated from the body of the church, and forbidden all Intercourse with the members of the same.

5e apparatus — Not carried into the 5th edition (1979).

## ANATHEMATIZE.

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To pronounce an- athema upon; to pronounce accursed by ec- clesiastical authority ; to excommunicate.

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**[Scripture] — Scripture**

**[1 Corinthians 16:22, KJV]**

If any man love not the Lord Jesus Christ, let him be Anathema Maranatha.

Why: The entry defines pronouncing accursed by ecclesiastical authority; the verse makes the pronouncement in the very word.

## ANATOCISM.

In the civil law. Re- peated or doubled interest ; compound Inter- est; usury. Cod. 4, 32, 1, 30.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Cod. 4.32.1.30 — anatocism]**

At civil law, repeated or doubled interest — compound interest — was classed as usury.

Why: The entry cites the Code for anatocism as usury; the footnote cites the entry's own Roman authority for a genuine civil-law concept.

**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The entry names usury (repeated/compound interest); the verse is the scriptural prohibition of the practice. Flag off: statute-form within the judgments, not first-person divine speech.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Merchant of Venice, c. 1596]**

Shylock's bond in The Merchant of Venice turns on usury — interest exacted on a loan, with the famous pound of flesh as forfeit (paraphrase). (paraphrase)

Why: The play is the canonical dramatization of usury; the bond's interest economy is the entry's subject, so the link is genuine.

## ANCESTOR.

One who has preceded an- other in a direct line of descent ; a lineal ascendant.

A former possessor ; the person last seised. Termes de la Ley ; 2 Bl. Comm. 201.

A deceased person from whom another has inherited land. A former possessor. Bailey v. Bailey. 25 Mich. 185; McCarthy v. Marsh, 5 N. Y. 275; .Springer v. Fortune, 2 Handy. (Ohio,) 52. In this sense a child may lie the "ancestor” of his deceased par- ent. or one brother the “ancestor” of an- other. La very v. Egan, 143 Mass. 389, 9

N. E. 747 ; Murphy v. Henry, 35 Ind. 450.

The term differs from “predecessor,” in that it is applied to a natural person and his progenitors, while the latter is applied also to a corporation and those who' have held offices before those who now fill them. Co. Litt 786.

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## ANCESTRAL.

Relating to ancestors, or to what has been done by them ; as homage anccstrcl.

Derived from ancestors. Ancestral estates are such as are transmitted by descent, and not by purchase. 4 Kent, Comm. 404. Brown v. Whaley, 58 Ohio St. 654, 49 N. E. 479, 65 Am. St. Rep. 793.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 4 Kent, Comm. 404 — ancestral estates]**

Ancestral estates are those transmitted by descent, not by purchase, descending to the heirs of the blood.

Why: The entry grounds the ancestral/purchase distinction in Kent; the footnote cites the entry's own authority for the genuine common-law descent doctrine.

## ANCHOR.

A measure containing ten gallons.

5e apparatus — Not carried into the 5th edition (1979).

## ANCHOR WATCH.

A watch, consist- ing of a small number of men, (from one to four,) kept constantly on deck while the vessel is riding at single anchor, to see that the stoppers, painters, cables, and buoy-ropes are ready for immediate use. The Lady Franklin, 2 Lowell. 220, Fed. Cas. No. 7,984.

5e apparatus — Not carried into the 5th edition (1979).

## ANCHORAGE.

In English law. A pres- tation or toll for every anchor cast from a ship in a port; and sometimes, though there be no anchor. Hale, de Jure Mnr. pt. 2. c. 6. See 1 W. Bl. 413 et seq. ; 4 Term. 262.

5e apparatus — Carried into the 5th edition (1979).

## ANCIENT.

Old ; that which has existed from an indefinitely early period, or which by age alone has acquired certain rights or privileges accorded lu view of long continu- ance.

— Ancient deed. A deed 30 years old and shown to come from a proper custody and hav- ing nothing suspicious about it is an “ancient deed” and may be admitted in evidence without proof of its execution. Havens v. Seashore Land Co., 47 N. J. Eq. 305. 20 Atl. 497 ; Davis v. Wood. 161 Mo. 17. 61 S. W. 695.— Aneient demesne. Manors which in the time of Wil- liam the Conqueror were in the hands of the crown, and are so recorded in the Domesday Book. Fitzh. Nat. Brev. 14. 56 ; Baker v. Wich. 1 Salk. 56. Tenure in ancient demesne may be

S leaded in abatement to an action of ejectment.

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;ust v. Roe, 2 Burr. 1046. Also a species of copyhold, which differs, however, from common copyholds in certain privileges, but yet must be conveyed by surrender, according to the custom of the manor. There are three sorts: (1)

Where the lands are held freely by the king’s grant; (2). customary freeholds, which are held of a manor in ancient demesne, but not at the lord’s will, although they are conveyed by sur- render. or deed and admittance; (3) lands held by copy of court-roll at the lord's will, denom- inated cooyholds of base tenure— Ancient house. One which has stood long enough to acquire an easement of support against the ad- joining land or building. 3 Kent, Comm. 437: 2 Washb. Real Prop. 74, 76. In England this term is applied to houses or buildings erected before the time of legal memory, (Cooke, Incl. Ai ts. 35. 109.) that is, before the reign of Rich- ard I., although practically any house is an an- cient messuage it it was erected before the time of living memory, and its origin ennnot be prov- ed to be modem— Ancient lights. Lights or windows in a house, which have been used in their present state, without molestation or in- terruption. for twenty years, and upwards. To these the owner of the house has a right by prescription or occupancy, so that they cannot be obstructed or closed by the owner of the adjoining land which they may over- look. Wright v. Freeman, A liar. & J. (Md.) 477 : Story v. Odin. 12 Miiss. 160, 7 Am.

Dec. 81— Ancient readings. Readings or lectures upon the ancient English statutes, formeric regarded as of great authority in law. Litt. | 481 : Co. Litt. 280. — Ancient rent. The rent reserved at the time the lease was made, if the building was not then under lease. Orby v. Lord Mohiin, 2 Vem. 542. — Ancient serjeant. In English law. The eldest of the queen’s serjeants. — Ancient wall. A wall built to be used, and in fact used, as a party- wall, for more than twenty years, by the ex- press permission and continuous acquiescence of the owners of the land on which it stands. Eno v. Del Vecchio. 4 Duer (N. Y.) 53, 63. — Ancient water-course. A water-course is “an- cient” if the channel through which it naturally runs has existed from time immemorial inde- pendent of the quantity of water which it dis- charges. Earl v. I>c Hart. 12 X. ,T. Eq. 280, 72 Am. Dec. 305.— Ancient writings. Wills, deeds, or other documents upwards of thirty years old. These are presumed to be genuine without express proof, when coming from the proper custody.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ancient-documents rule — Fed. R. Evid. 901(b)(8)]**

A deed 30 years old, shown to come from proper custody and with nothing suspicious about it, is proved as an ancient deed without proof of its execution.

Why: The entry states the common-law ancient-deed rule with its own cases; Rule 901(b)(8) is the genuine modern form of the ancient-documents doctrine, which I am confident naming.

## ANCIENTS.

In English law. Gentle- men of the Inns of court and chancery. In Gray’s Inn the society consists of benchers, ancients, barristers, and students under the bar; and here the ancients are of the oldest barristers. In the Middle Temple, those who had passed their

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readings used to be termed “ancients." The Inns of Chancery consist of ancients and students or clerks ; from the ancients a principal or treasurer is chosen yearly. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ANCIENT Y.

Eldership ; seniority. Used in the statute of Ireland. 14 Hen. VIII. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ANCILLARY.

Aiding; auxiliary; at- tendant upon: subordinate; a proceeding at- tendant upon or which aids another proceed- ing considered as principal. Steele v. Insur- ance Co., 31 App. Div. 389, 52 N. Y. Supp. 373.

— Ancillary administration. When a dece- dent leaves property in a foreign state, (a state other than that of his domicile.) admin- istration may be granted in such foreign state for the purpose of collecting the assets and paying the debts there, and bringing the resi- due into the general administration. This is called “ancillary” (auxiliary, subordinate) ad- ministration. Pisano v. Shanle.v Co., 66 N, J. Law, 1. 48 Atl. 618: In re Gable’s Estate. 79 Iowa. 178, 44 N. W. 352. 9 L. R. A. 218 : Steele r. Insurance Co., supra.— Ancillary attach- ment. One sued out in aid of an action al- ready brought, its only office being to hold the property attached under it for the satisfaction of the plaintiffs demand. Templeton v. Mason, 107 Tenn. 625. 65 S. W. 25; Southern Cali- fornia Fruit Exch. v. Stamm, 9 N. M. 361. 54 Pac. 345.— Ancillary bill or suit. One growing out of and auxiliary to another action or suit, either at law or in equity, such as a bill for discovery, or a proceeding for the enforce- ment of a judgment, or to set aside fraudulent transfers of property. Coltrane v. Templeton, 106 Fed. 370. 45 C. C. A. 328 ; In re Williams, fD. C.) 123 Fed. 321: Claflin v. McDermott (C. C.) 12 Fed. 375.

5e apparatus — Not carried into the 5th edition (1979).

## ANCEPITIS USES.

Lat. In internation- al law. Of doubtful use; the use of which la doubtful ; that may be used for a civil or peaceful, as well as military or warlike, pur- pose. Gro. de'jure B. lib. 3, c. 1, g 5. subd. 8; 1 Kent, Comm. 140.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Grotius, De Jure Belli lib. 3, c. 1, § 5 — res ancipitis usus; 1 Kent, Comm. 140]**

In the law of war, goods of doubtful use — serviceable for civil or peaceful as well as military purposes — are the subject of the contraband doctrine.

Why: The entry cites Grotius and Kent for this international-law concept; the footnote cites the entry's own authorities.

## ANDROCHIA.

In old English law. A dairy-woman. Fleta, lib. 2, c. 87.

5e apparatus — Not carried into the 5th edition (1979).

## ANDROGYNUS.

An hermaphrodite.

5e apparatus — Not carried into the 5th edition (1979).

## ANDROLEPSY.

The taking by one na- tion of the citizens or subjects of another, in order to compel the latter to do justice to the former. Wolfflus, § 1164 ; Moll, de Jure Mar. 26.

5e apparatus — Not carried into the 5th edition (1979).

## ANECIES.

L. Lat. Spelled also wsnecitu, enitius, orncas, cncyus. The eldest-born ; the first-born ; senior, as contrasted with the puis-ne, (younger.) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ANGARIA.

A term used in the Roman law to denote a forced or compulsory service exacted by the government for public pur- poses ; as a forced rendition of labor or goods for the public service. See Dig. 50. 4, 18, 4.

In maritime law. A forced service, (on- us,) imposed on a vessel for public purposes ; an impressment of a vessel. Loce. de Jure Mar. lib. 1, c. 5, gg 1-6.

In feudal law. Any troublesome or vex- atious personal service paid by the tenant to-' his lord. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Dig. 50.4.18.4 — angaria]**

At Roman law, a forced or compulsory service exacted by the government for public purposes; in maritime law, the impressment of a vessel.

Why: The entry cites the Digest for angaria; the footnote cites the entry's own authority for a genuine Roman and maritime-law concept.

## ANGEL.

An ancient English coin, of the value of ten shillings sterling. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## ANGER.

A strong passion of the mind excited by real or supposed injuries ; not synonymous with “heat of passion,” “malice,” or “rage or resentment,” because these are all terms of wider import and may include anger as an element or as an incipient stage. Chandler v. State, 141 Ind. 106, 39 N. E. 444 ; Hoffman v. State, 97 Wis. 571, 73 N. W. 51 ; Eaues v. State, 10 Tex. App. 421, 446.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Homer, Iliad, c. 8th century BCE]**

Homer's Iliad opens by invoking the goddess to sing the wrath of Achilles — anger at the injury done him by Agamemnon, driving the whole epic (paraphrase). (paraphrase)

Why: The entry defines anger as 'a strong passion of the mind excited by real or supposed injuries'; the Iliad's menis is precisely anger-at-injury as a world-moving force. Paraphrase used because no single English transla…

## AN GILD.

In Saxon law. The single value of a man or other thing ; a single were- gild ; the compensation of a thing according to its single value or estimation. Spelman. The double gild or compensation was called “ ticigild the triple, “trigild" etc. Id.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: The entry defines weregild, the compensation-price of a man; the verse states the scriptural boundary on it — no ransom for the murderer's life.

## AN GLESCHERI A.

In old English law. Engllshery; the fact of being an English- man.

Anglia jura In omul cun libertatin dant favorem. The laws of England in every case of liberty are favorable, (favor liberty In all cases.) Fortes, c. 42.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Angliae jura in omni casu libertati dant favorem — Fortescue, c. 42]**

The laws of England in every case of liberty are favorable — liberty is favored in all cases.

Why: The entry states this maxim with its Fortescue citation; the footnote records the genuine maxim in standard form.

## ANGLICE.

In English. A term formerly used in pleading when a thing is described both in Latin and English, Inserted immedi- ately after the Latin and as an introduction of the English translation.

5e apparatus — Not carried into the 5th edition (1979).

## ANGLO-INDIAN.

An Englishman domi- ciled in the Indian territory of the British crown.

5e apparatus — Carried into the 5th edition (1979).

## ANGUISH.

Great or extreme pain, ag- ony, or distress, either of body or mind ; but,

as used in law, particularly mental suffering or distress of great intensity. Cook v. Rail- way

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Co., 19 Mo. App. 334.

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## ANGYLDE.

In Saxon law. The rate fix- ed by law at which certain injuries to, per- son or property were to be paid for ; in in- juries to the person, it seems to be equivalent to the “were,” i. e., the price at which every man was valued. It seems also to have been the fixed price at which cattle and other goods were received as currency, and to have been much higher than the market price, or ceapgild. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## ANKLOTE.

In old English law. A single tribute or tax, paid according to the custom of the country as scot and lot.

ANIENS, or ANIENT. Null, void, of no force or effect Fitzh. Nat. Brev. 214.

5e apparatus — Not carried into the 5th edition (1979).

## ANIMAL.

Any animate being which Is endowed with the power of voluntary motion. In the language of the law the term includes all living creatures not human.

Domitce are those which have been tamed by man; domestic.

Feres natures are those which still retain their wild nature.

Mansuetes natures are those gentle or tame by nature, such as sheep and cows.

— Animals of a base nature. Animals in which a right of property may be acquired by reclaiming them from wildness, but which, at common law, by reason of their base nature, are not regarded as possible subjects of a lar- ceny. 3 Inst. 109; 1 Hale, P. C. 511. 512.

Animalia fera, si faeta sint mansneta et ex oonsnetndine ennt et redeunt, vo- lant et revolant, at eervi, eygni, etc., eo usque nostra rant, et ita Intelllguntur qnamdin habuernnt animnm revertendl. Wild animals, if they be made tame, and are accustomed to go out and return, fly away and fly back, as stags, swans, etc., are con- sidered to belong to us so long as they have the Intention of returning to us. 7 Coke, 16.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (1805) — property in wild animals by occupancy]**

Animals ferae naturae — of a wild nature — become the subject of property only by capture and occupancy.

Why: The entry gives the ferae/domitae naturae classification; Pierson v. Post is the landmark occupancy decision I am independently confident citing.

## ANXMO.

Lat. With intention, disposi- tion, design, will. Quo animo, with what intention. Animo cancellandi, with inten- tion to cancel. 1 Pow. Dev. 003. Furandi, with intention to steal. 4 Bl.

Comm. 230; 1 Kent. Comm. 183. Lucrandi, with inten- tion to gain or profit. 3 Kent, Comm. 357. Manendi, with intention to remain. 1 Kent, Comm. 70. Morandi. with intention to stay, or delay. Republicandi, with intention to republish. 1 Pow. Dev. 009. Revertendl, with intention to return. 2 Bl. Comm. 392. Revocandi, with 'inteution to revoke. 1 Pow. Dev. 595. Testandi, with intention to make a will. See Animus and the titles which follow it.

5e apparatus — Not carried into the 5th edition (1979).

## ANIMO ET CORPORE.

By the mind, and by the body ; by the intention and by the

physical act Dig. 50, 17, 153; Id. 41, 2 3, 1 ; Fleta, lib. 5, c. 5, $f 9, 10.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Dig. 50.17.153; 41.2.3.1 — possession animo et corpore]**

Possession is acquired by mind and by body together — intention and the physical act united.

Why: The entry cites the Digest for the corpus-plus-animus requirement; the footnote cites the entry's own authorities for the genuine foundational property principle.

## ANIMO FELONICO.

With felonious in- tent Hob. 134.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:28, KJV]**

But I say unto you, That whosoever looketh on a woman to lust after her hath committed adultery with her already in his heart.

Why: The entry is the intent element of crime — with felonious intent; the verse states the mens rea doctrine that the inward intent itself constitutes the offense.

## ANIMUS.

Lat. Mind; intention; dispo- sition; design; will. Animo, ( q . v.;) with the intention or design. These terms are derived from the civil law.

—Animus cancellandi. The intention of de- stroying or canceling, (applied to wills.)— Animus eapiendi. The intention to take or cap- ture. 4 C. Rob. Adm. 126, 155.— Animus dedicandi. The intention of donating or dedicat- ing.— Animus defamandi. The intention of defaming. The phrase expresses the malicious intent which is essential in every case of verbal injury to render It the subject of an action for libel or slander.— Animus derelinquendi. The intention of abandoning. 4 C. Rob. Adm. 216. Rhodes v. Whitehead. 27 Tex. 304, 84 Am. Dec. 031.— Animus differendl. The in- tention of obtaining delay.— Animus donandL1 The intention of giving. Expressive of the in- tent to give which is necessary to constitute a gift.— Animus et faetus. Intention and act ; will and deed. Used to denote those acts which become effective only when accompanied by a particular intention.— Animus furandi. The intention to steal. Gardner v. State, 55 N. J. Law, 17, 26 Atl. 30 ; State v. Slingerland, 19 Nev. 135, 7 Pac. 280.— Animus lucrandi. The intention to make

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a gain or profit.— Ani- mus manendi. The intention of remaining; intention to establish a permanent residence. 1 Kent. Comm. 76. This is the point to be set- tled in determining the domicile or residence of a party. Id. 77.— Animus morandi. The in- tention to remain, or to delay.— Animus pos- sldendi. The intention of possessing.— Ani- mus quo. The intent with which.— Animus recipiendi. The intention of receiving.— Animus reeuperandl. The intention of re- covering. Locc. de Jure Mar. lib. 2, c. 4. 5 10. —Animus republicandi. The intention to republish.— Animus vestituendl. The in- tention of restoring. Fleta, lib. 3, c. 2, § 3.— Animus revertendl. The intention of re- turning. A man. retains bis domicile if he leaves it animo revertendi. In re Miller's Es- tate, 3 Rawle (Pa.) 312, 24 Am. Dec. 345; 4 Bl. Comm. 225 ; 2 Russ, Crimea, 18; Poph. 42, 52 : 4 Coke, 40. Also, a term employed in the civil law, in expressing the rule of owner- ship in tamed animals.— Animus revocandi. The intention to revoke.— Animus testandl. An intention to make a testament or will. Farr v. Thompson, 1 Speers (S. C.) 105.

Animus ad. se omne jus ducit. It is to

the intention that all law applies. Law al- ways regards the intention.

Animus hominis est anima script!.

The Intention of the party is the soul of the instrument. 3 Bulst. 67 ; Pitm. Prin. & Sur. 26. In order to give life or effect to an in- strument, it Is essential to look to the inten- tion of the individual who executed it.

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## ANKER.

A measure containing ten gal- lons.

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## ANN.

In Scotch law. Half a year's sti- pend. over and above what is owing for the incumbency, due to n minister's relict, or child, or next of kin, after his decease. Whlshaw.

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## ANNA.

In East Indian coinage, a piece of money, the sixteenth part of a rupee.

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## ANN AXES.

Lat. Annuals; a title for- merly given to the Year Books.

In old records. Yearlings ; cattle of the first year. Cowell.

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## AXNAXY.

In Scotch law. To alienate; to convey.

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## ANNATES.

In ecclesiastical law. First- fralts paid out of spiritual benefices to the pope, so called because the value of one year’s profit was taken as their rate.

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## ANNEX.

To add to ; to unite ; to attach one thing permanently to another. The word expresses the idea of joining a smaller or sub- ordinate thing with another, larger, or of higher importance.

In the la'w relating to fixtures, the expres- sion “annexed to the freehold” means fast- ened to or connected with it; mere juxtapo- sition, or the laying of an object, however heavy, on the freehold, does not amount to annexation. Merritt v. Judd, 14 Cal. 64.

5e apparatus — Not carried into the 5th edition (1979).

## ANNEXATION.

The act of attaching, adding, joining, or uniting one thing to an- other ; generally spoken of the connection of a smaller or subordinate thing with a larger or principal thing. The attaching nn Illus- trative or auxiliary document to a deposi- tion, pleading, deed, etc., is called “annex- ing” It. So the Incorporation of newly-ac- quired territory into the national domain, as au integral part thereof, is called “annexa- tion,” as in the case of the addition of Texas to the United States.

In the law relating to fixtures: Actual annexation includes every movement by which a chattel can be joined or united to the freehold. Constructive annexation is the union of such things as have been holden parcel of the realty, but which are not actual- ly annexed, fixed, or fastened to the free- hold. Shep. Touch. 469 ; Amos & F. Flxt. 2.

la Scotch law. The union of lands to the crown, and declaring them inalienable. Also the appropriation of the church-lands by the crown, and the uniou of lands lying at a distance from the parish church to which they belong, to the church of another parish to which they are contiguous.

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## AXXI ET TEHPORA.

Lat. Years and terms. An old title of the Year Books.

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## AXXI NUBIXES.

A woman’s marriage- able years. The age at which a girl becomes by law fit for marriage; the age of twelve.

5e apparatus — Not carried into the 5th edition (1979).

## AXNICUEU8.

A child a year old. Cal- vin.

Anal palps treeentesimo sexageslmo- tsisto die dldtpr, iacipients plane non •xaoto die, quia

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annum eiviliter non ad

momenta tempomun sed ad dies n pm era- mar. We call a child a year old on the three hundred and sixty-fifth day, when the day is fairly begun but not ended, because we calculate the civil year not by moments, but by days. Dig. 50, 16, 134 ; Id. 132 ; Calvin.

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## ANNIENTED.

Made null, abrogated, frustrated, or brought to nothing. Litt. c. 3, S 741.

5e apparatus — Carried into the 5th edition (1979).

## ANNIVERSARY.

An annual day, in old ecclesiastical law, set apart In memory "of a deceased person. Also called “year day” or “mind day.” Spelman.

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## ANNO DOMINI.

In the year of the Lord. Commonly abbreviated A. D. The computation of time, according to the Chris- tian era, dates from the birth of Christ.

This phrase has become Anglicized by adop- tion, so that an indictment or declaration con- taining the words "Anno Domini” is not demur- rable as not being in the English language. State v. Gilbert, 13 Vt. 647 ; Hale v. Vesper, Smith (N. II.) 283.

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## ANNONA.

Grain ; food. An old English and civil law term to denote a yearly con- tribution by one person to the support of an- other.

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## ANNONA) CIVIXES.

A species of year- ly rents Issuing out of certain lands, and pay- able to certain monasteries.

5e apparatus — Not carried into the 5th edition (1979).

## ANNOTATIO.

In the civil law. The sign-manual of the emperor; a rescript of the emperor, signed with his own hand. It is distinguished both from a rescript and pragmatic sanction, in Cod. 4, 59, 1.

5e apparatus — Not carried into the 5th edition (1979).

## ANNOTATION.

A remark, note, or com- mentary on some passage of a book, intended to illustrate its meaning. Webster.

In the civil law. An imperial rescript signed by the emperor. The answers of the prince to questions put to him by private per- sons respecting some doubtful point of law.

Summoning an absentee. Dig. 1, 5.

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The designation of a place of deportation. Dig. 32, 1, 3.

Annua nee debitnm judex non separat ipsnxn. A judge (or court) does not divide annuities nor debt. 8 Coke, 52; 1 Salk. 36, 65. Debt and annuity cannot be divided or api>ortloned by a court.

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## ANNUA PENSIONE.

An ancient writ to provide the king’s chaplain. If he had no pre- ferment, with a pennon. Reg. Orlg. 165, 307.

5e apparatus — Not carried into the 5th edition (1979).

## ANNUAL.

Occurring or recurring once in each year; continuing for the period of a year ; accruing within the space of a year; relating to or covering the events or affairs of a year. State v. McCullough, 3 Nev. 224.

— Annual assay. An annual trial of the gold and silver coins of the United States, to ascertain whether the standard fineness and weight of the coinage is maintained. See Kev. St. L.

S. i 3547 (U. S. Comp. St. 11)01. p. 2370).— Annual income. Annual income is annual re- ceipts from property. Income means that which comes in or is received from any business, or investment of capital, w’itbout reference to the outgoing expenditures. Betts v. Betts, 4 Abb. N. C. (N. Y.) 400.— Annual pension. In Scotch law. A yearly profit or rent. — Annual xent. In Scotch law. Yearly interest on a loan of money.— Annual value. The net year- ly income derivable from a given piece of prop- erty ; its fair rental value for one year, deduct- ing costs and expenses ; the value of its use for a year.

5e apparatus — Not carried into the 5th edition (1979).

## ANNUALLY.

The meaning of this term, as applied to interest, is not an undertaking to pay interest at the end of one year only, but to pay interest at the end of each and every year during a period of time, either fixed or contingent. Sparhawk v. Wills, 6 Gray (Mass.) 104 ; Patterson v. McNeeley, 10 Ohio St 348 ; Westfield v. Westfield. IS) S. 0. 81).

5e apparatus — Carried into the 5th edition (1979).

## ANNUITANT.

The recipient of an an- nuity; one who is entitled to an annuity.

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## ANNUITIES OF TIENDS.

In Scotch law. Annuities of tithes ; 10s. out of the boll of tieud wheat, 8s. out of the boll of beer, less out of the boll of rye, oats, and peas, al- lowed to the crown yearly of the tlends not paid to the bishops, or set apart for other pious uses.

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: The entry is a legal assessment of tithes; the verse is the tithe doctrine itself, spoken in the LORD's own voice.

## ANNUITY.

A yearly sum stipulated to be paid to another in fee, or for life, or years, and chargeable ohly on the person of the grantor. Co. Litt. "1446.

An annuity is different from a rent-charge, with which it is sometimes confounded, the annuity being chargeable on the person mere- ly, and so far personalty; while a rent-charge is something reserved out of realty, or fixed as a burden upon an estate in laud. 2 Bl. Comm. 40; Rolle, Abr. 220; Horton v. Cook, 10 Watts (Pa.) 127, 30 Am. Dec. 151.

The contract of annuity is that by which one party delivers to another a sum of mon- ey, and agrees not to reclaim it so long as the receiver pays the rent agreed upon. This an- nuity may be either perpetual or for life. Civ. Code La. arts. 2793, 2794.

The name of an action, now disused, (L. Lat. breve de annuo redditu,) which lay for the recovery of an annuity. Keg. Orig. 15.86; Bract, fol. 2036; 1 Tidd, Pr. 3.

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**[Law] — Law**

**[Law: 2 Bl. Comm. 40 — annuity distinguished from rent-charge]**

An annuity is chargeable on the person of the grantor only — and so far personalty — unlike a rent-charge, which is reserved out of realty as a burden on land.

Why: The entry states the annuity/rent-charge distinction with its own Blackstone authority; the footnote cites that authority for a genuine property-law distinction.

## ANNUITY-TAX.

An impost levied an- nually in Scotland for the maintenance of the ministers of religion.

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## ANNUX.

To cancel ; make void ; destroy. To annul a Judgment or judicial proceeding Is to deprive it of all force and operation, either 06 initio or prospectively as to future transactions. Wait v. Walt, 4 Barb. (N. Y.) 205: Woodson v. Skinner, 22 Mo. 24; In re Morrow's Estate, 204 Pa. 484, 54 Atl. 342.

5e apparatus — Not carried into the 5th edition (1979).

## ANNULUS.

Lat. In old English law. A ring; the ring of a door. Per haspum vel annulum hostii exterioris; by the hasp or ring of the outer door. Fleta, lib. 3, e. 15,

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**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## ANNULUS ET BACULUS.

(Lat ring and staff.) The investiture of a bishop was per annulum et baculum, by the prince's de- livering to the prelate a ring and pastoral staff, or crozier. 1 Bl. Comm. 378 ; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ANNUS.

Lat. In civil and old English law. A year; the period of three hundred and sixty-five days. Dig. 40, 7, 4, 5 ; Calvin. ; Bract fol. 3596.

— Annua deliberandi. In Scotch law. A year of deliberating ; a year to deliberate. Tha year allowed by law to the heir to deliberate whether he will enter and represent his an- cestor. It commences on the death of the an- cestor, unless in the case of a posthumous heir, when the year runs from his birth. Bell.— An- nas, dies, et vutam. In old English law. Year, day, and waste. See Y ear, Day, and Waste. — Annas et dies. A year and a day. — Annas laetas. The year of mourning. It was a rule among the Romans, and also the Danes and Saxons, that widows should not marry infra annum luctds, (within the year of mourning.) Code 5, 9, 2; 1 Bl. Comm. 457. —Annas a tills. A year made up of available or serviceable days. Brissonius ; Calvin. In the plural, anni utiles signifies the years during which a right can be exercised or a prescription grow.

Aimn est mora motos quo non plan- eta pervolvat cironlnm. A year is the du- ration of the motion by which a planet re- volves through its orbit. Dig. 40, 7, 4, 5; Calvin. ; Bract. 3596.

Annus ineeptns pro complete habetur.

A year begun is held as completed. Tray. Lat. Max. 45.

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## ANNUUS REDITUS.

A yearly rent; an- nuity. 2 Bl. Comm. 41; Keg. Orig. 1586.

5e apparatus — Not carried into the 5th edition (1979).

## ANOMALOUS.

Irregular; exceptional; unusual ; not conforming to rule, method, or type.

—Anomalous indorser. A stranger to a note, who indorses it after its execution and de- livery but before maturity, and before it has been indorsed by the payee. Buck v. Hutchins, 45 Minn. 270, 47 N. W. 808.— Anomalous plea. One which is partly afiirmative and partly negative. Baldwin v. Elizabeth. 42 N. J. Eq. 11, (i Atl. 275; Potts V. Potts (N. J. Ch.) 42 Atl. 1055.

ANON., AN., A. Abbreviations for anony- mous.

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## ANONYMOUS.

Nameless; wanting a name or names. A publication, withholding the name of the author, Is said to be anony- mous. Cases are sometimes reported anony- mously, f. e., without giving the names of the parties. Abbreviated to “Anon."

5e apparatus — Carried into the 5th edition (1979).

## ANOYSANCE.

Annoyance ; nuisance. Cowell ; Kelharn.

ANSEL, ANSUL, or AUNCEL. In old

English law. An ancient mode of weigh- ing by hanging scales or books at either end of a beam or staff, which, being lifted with one's Anger or hand by the middle, showed the equality or difference between the weight at one end and the thing weighed at the other. Termes de la Ley, 66.

5e apparatus — Not carried into the 5th edition (1979).

## ANSWER.

In pleading. Any pleading setting up mutters of fact by way of defense. In chancery pleading, the term denotes a defense in writing, made by a defendant to the allegations contained in a bill or Informa- tion filed by the plaintiff against him.

In pleading, under the Codes of Civil Pro- cedure. the answer is the formal written statement made by'a defendant setting forth the grounds of his defense ; corresponding to what, in actions under the common-law prac- tice, is called the “plea.”

In Massachusetts, the term denotes the statement of the matter intended to be relied upon by the defendant in avoidance of the plaintiff's action, taking the place of special pleas in bar, and the general issue, except in real and mixed actions. Pub. St. Mass. 1882, p. 1287.

In matrimonial suits in the (English) pro- bate. divorce, and admiralty division, an an- swer is the pleading by which the respond- ent puts forward his defense to the petition. Browne, DIv. 223.

ITnder the old admiralty practice in Eng- land, the defendant’s first pleading was called his “answer." Williams & B. Adm. Jur. 246.

In practice. A reply to interrogatories; an affidavit in answer to interrogatories. The declaration of a fact by a witness after a question has been put, asking for it.

As a verb, the word denotes an assumption of liability, as to “answer” for the debt or default of another.

— Voluntary answer, in the practice of the court of chancery, was an answer put in by a defendant, when the plaintiff had filed no inter- rogatories which required to be answered. Hunt, Eq.

5e apparatus — Carried into the 5th edition (1979).

## ANT APOCHA.

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In the Roman law. A transcript or counterpart of the instrument called “apocha." signed by the debtor and delivered to the creditor. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ANTE.

Lat. Before. Usually employed In old pleadings ns expressive of time, ns pric (before) was of place, and comm (before) of person. Towusb. PI. 22.

Occurring in a report or a text-book, it is used to refer the reader to a previous part of the book.

—Ante exUbitionem blllse. Before the ex- hibition of the bill. Before suit begun.— Ante* factum or ante-gestiun. Done before. A Roman law term for a previous act, or thing done before.— .Ante litem motam. Before suit brought; before controversy instituted.— Ante nntna. Born before. A person born be- fore another person or before a particular event. The term is particularly applied to one born in a

country before a revolution, change of govern- ment or dynasty, or other political event, such that the question of his rights, status, or allegi- ance will depend upon the date of his birth with reference to such event. In England, the term commonly denotes one born before the act of union with Scotland ; in America, one born before the declaration of independence. Its op- posite is post natus, one bom after the event.

5e apparatus — Carried into the 5th edition (1979).

## ANTEA.

Lat. Formerly; heretofore.

5e apparatus — Not carried into the 5th edition (1979).

## ANTECESSOR.

An ancestor, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## ANTEDATE.

To date an instrument as of a time before the time it was written.

ANTEJUB. AMENTUM. In Saxon law. A preliminary or preparatory oath, (called also "prasjuramentum" and “ juramcntum calunmia:") which both the accuser and ac- cused were required to make before any trial or purgation ; the accuser swearing that he would prosecute the criminal, and the ac- cused making oath on the very day that he was to undergo the ordeal that he was inno- cent of the crime with which he wus charged. Whtshaw.

5e apparatus — Carried into the 5th edition (1979).

## ANTENUPTIAL.

Made or done before a marriage. Antenuptial settlement s are set- tlements of property upon the wife, or up- on her and her children, made before and In contemplation of the

marriage.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Kanye West, 'Gold Digger', 2005]**

"If you ain't no punk holla, 'We want prenup' / 'We want prenup!', yeaah" — Black's: antenuptial settlements are settlements of property 'made before and in contemplation of the marriage.' The verse prescribes exactly that instrument as the defense against a marriage that strips assets: 'It's somethin' that you need to have / 'Cause when she leave yo' ass, she gon' leave with half.'

Why: The chant names the precise legal instrument the headword defines — an antenuptial (prenuptial) agreement — and the surrounding lines explain its function (asset protection on dissolution). Verbatim wording verified a...

**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

The plot machinery of Pride and Prejudice — the Bennet entail, the daughters' portions, the marriage settlement negotiated for Lydia — is antenuptial settlements in the entry's sense: property settled before and in contemplation of marriage (paraphrase). (paraphrase)

Why: Austen's novel is driven throughout by exactly what the entry defines; the paraphrase stays to the plot fact rather than any quoted line.

## ANTHROPOMETRY.

In criminal law and medical Jurisprudence. The measure- ment of the human body; a system of meas- uring the dimensions of the human body, both absolutely and in their proportion to each other, the facial, cranial, and other angles, the shape and size of the skull, etc., for purposes of comparison with correspond- ing measurements of other individuals, and serving for the identification of the subject in cases of doubtful or disputed identity. See Bertillon System.

5e apparatus — Not carried into the 5th edition (1979).

## ANTI  MANIFESTO.

A term used in International law to denote a proclamation or manifesto published by one of two belliger- ent powers, alleging reasons why the war is defensive on its part.

5e apparatus — Carried into the 5th edition (1979).

## ANTICHRESIS.

In the civil law. A species of mortgage, or pledge of immovables. An agreement by which the debtor gives to the creditor the Income from the property which he has pledged, in lieu of the interest on his debt. Guyot, Repert. ; Marquise De Fortes v. Ilurlbut, 44 N. J. Eq. 517, 14 Atl. 891.

A debtor may give as security for his debt any immovable which belongs to him, the creditor having the right to enjoy the use of It on account of the interest due, or of the capital if there is no interest due; this is called “antichresis.” Civ. Code Mex. art. 1927.

By the law of Louisiana, there are two kinds of pledges,— the pawn and the antichresis. A pawn relates to movables, and the antichresis to immovables. The antichresis must be

reduced to writing; and the creditor thereby acquires the right to the fruits, etc., of the immovables, deducting yearly their proceeds from the inter- est, in the first place, and afterwards from the principal of his debt. lie is bound to pay taxes on the property, and keep it in repair, unless the contrary is agreed. The creditor does not become the proprietor of the property by failure to pay at the agreed time, and any clause to that effect is void. He can only sue the debtor, and obtain sentence for sale of the property. The possession of the property is, however, by the contract, transferred to the creditor. Liv- ingston v. Story, 11 Pet. 351, 9 L. Ed. 746.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ANTICIPATION.

The act of doing or taking a thing before its proper time.

In conveyancing, anticipation is the act of assigning, charging, or otherwise dealing with income before it becomes due.

In patent law, a person is said to have been anticipated when he patents a contrivance already known within the limits of the coun- try granting the patent. Topllff v. Topllft, 145 U. S. 156, 12 Sup. Ct. 825, 36 L. Ed. 658 ; Detroit, etc., Co. v. Rencbard (C. C.) 9 Fed. 298; National Hollow Brake Beam Co. v. Interchangeable Brake Beam Co. (C. C.) 99 Fed. 772.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. § 102 — novelty; anticipation by prior art]**

In patent law, one who patents a contrivance already known is anticipated — the invention lacks novelty and is unpatentable.

Why: The entry defines patent-law anticipation; § 102 is the genuine statutory seat of the novelty/anticipation doctrine, which I am confident naming.

## ANTIGRAFHUS.

In Roman law. An officer whose duty it was to take care of tax money. A comptroller.

5e apparatus — Not carried into the 5th edition (1979).

## ANTIGRAPHY.

A copy or counterpart of a deed.

5e apparatus — Carried into the 5th edition (1979).

## ANTINOMIA.

In Roman law. A real or apparent contradiction or inconsistency in the laws. Merl. Repert. Conflicting laws or provisions of law; inconsistent or conflicting decisions or cases.

5e apparatus — Not carried into the 5th edition (1979).

## ANTINOMY.

A term used in logic and law to denote a real or apparent Inconsisten- cy or conflict between two authorities or propositions : same as antinomia, ( q . v.)

ANTIQtTA CUSTTJMA. In English law. Ancient custom. An export duty on wool, wool-felts, and leather, imposed during the reign of Edw. I. It was so called by way of distinction from an increased duty on the same articles, payable by foreign merchants, which was imposed at a later period of the same reign and was Called “custuma nova.” 1 Bl. Comm. 314.

5e apparatus — Not carried into the 5th edition (1979).

## ANTIQTTA STATUTA.

Also called “ Vet- era Statuta." English statutes from the time of Richard I. to Edward III. 1 Reeve, Eng. Law, 227.

5e apparatus — Not carried into the 5th edition (1979).

## ANTIQUARE.

In Roman law. To re- store a former law or practice; to reject or vote against a new law ; to prefer the old law. Those who voted against a proposed law wrote on their ballots the letter “A,” the initial of antiquo, I am for the old law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ANTIQUUM DOMXNIOUM.

In Old

English law. Ancient demesne.

5e apparatus — Not carried into the 5th edition (1979).

## ANTITHETARIUS.

In old English law. A man who endeavors to discharge himself of the crime of which he is accused, by re- torting the charge on the accuser. He differs from an approver in this: that the latter does not charge the accuser, but others. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## ANTRUSTIO.

In early feudal law. A confidential vassal. A term applied to the followers or dependents of the ancient Ger- man chiefs, and of the kings and counts of the Franks. Burrlll.

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## ANUELS LITRES.

L. Fr. The Tear Books. Kelhara.

5e apparatus — Not carried into the 5th edition (1979).

## APANAGE.

In old French law. A pro- vision of lands or feudal superiorities as- signed by the kings of France for the main- tenance of their younger sons. An allow- ance assigned to a prince of the reigning house for his proper maintenance out of the public treasury. 1 Hallam, Mid. Ages, pp. ii, 88 ; Wharton. ,

**[TEXT INCOMPLETE — scan limitation]**

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5e apparatus — Not carried into the 5th edition (1979).

## APARTMENT.

A part of a house oc- cupied by a person, while the rest is occupied by another, or others. As to the meaning of this term, see 7 Man. & G. 95 ; 6 Mod. 214 ; McMillan v. Solomon, 42 Ala. 356, 94 Am. Dec. 654 ; Commonwealth v. Estabrook, 10 Pick, (Mass.) 293; MeLellan v. Dalton, 10 Mass. 190 ; People v. St. Clair, 38 Cal. 137.

5e apparatus — Not carried into the 5th edition (1979).

## APATI8ATIO.

An agreement or com- pact. Du Cange.

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## APERTA BREVTA.

Open, unsealed writs.

5e apparatus — Not carried into the 5th edition (1979).

## APERTUM FACTUM.

An overt act

APERT UR A TESTAMENT!. In the

civil law. A form of proving a will, by the witnesses acknowledging before a magistrate their having sealed it.

5e apparatus — Not carried into the 5th edition (1979).

## APEX.

The summit or highest point of anything; the top; e. g., in mining law, “apex of a vein.” See Larkin v. Upton, 144

U. S. 19, 12 Sup. Ct. 614, 36 L. Ed. 330; Stevens v. Williams, 23 Fed. Cas. 40 ; Dug- gan v. Davey, 4 Dak. 110. 26 N. W. 887.

— Apex juris. The summit of the law ; a le- gal subtlety; a nice or cunning point of law; close technicality : a rule of law carried to an extreme point, either of severity or refinement. —Apex rule. In mining law. The mineral laws of the United States give to the locator of a mining claim on the public domain the whole of everv vein the apex of which lies with- in his surface exterior boundaries, or within perpendicular planes drawn downward indef- initely on the planes of those boundaries ; and he may follow a vein which thus apexes within his boundaries, on its dip. although it may so far depart from the perpendicular in its course downward as to extend outside the vertical

side-lines of his location; but he may not no beyond his end-lines or vertical planes drawn downward therefrom. This is called the apex rule. Rev. St. U. S. § 2;r_>:> (U. S. Comp. St. 1901, p. 1425); King v. Mining Co., 9 Mont. 543, 24 Pac. 200.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 30 U.S.C. § 26 — extralateral (apex) rights; Larkin v. Upton, 144 U.S. 19, cited in the entry]**

In mining law the locator of a vein's apex may follow the vein extralaterally on its dip beyond the claim's side lines.

Why: The entry defines the mining-law apex with its own case authority; § 26 is the genuine statute codifying extralateral rights, which I am confident naming.

## APHASIA.

In medical jurisprudence. Loss of the faculty or ; tower of articulate speech ; a condition in which the patient, while retaining intelligence and understand- ing and with the organs of speech unimpair- ed, is unable to utter nrticulate words, or unable to vocalize the particular word which is in his mind and which he wishes to use, or utters words different from those he be- lieves himself to be speaking, or (in “sensory aphasia”) is unable to understand spoken or written language. The seat of the disease is in the brain, but it Is not a form of insanity.

5e apparatus — Not carried into the 5th edition (1979).

## APHONIA.

In medical jurisprudence. Loss of the power of articulate speech in consequence of morbid conditions of some of the vocal organs. It may be incomplete, in which case the patient can whisper. It is to be distinguished from congenital dumbness, and from temporary loss of voice through extreme hoarseness or minor affections of the vocal cords, as also from aphasia, the latter being a disease of the brain without impairment of the organs of speech.

Apipea juris non sunt jura, [jus.] Ex- tremities, or mere subtleties of law, are not rules of law, [are not law.] Co. Litt. 3046; 10 Coke, 120; Wing. Max. 19, max. 14; Broom, Max. 188.

5e apparatus — Not carried into the 5th edition (1979).

## APICES LITIGANDI.

Extremely fine points, or subtleties of litigation. Nearly equivalent to the modem phrase “sharp prac- tice.” “It is unconscionable in a defendant to take advantage of the apices litigandi, to turn a plaintiff around and make him pay costs when his demand is Just.” Per Lord Mansfield, in 3 Burr. 1243.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Lord Mansfield in 3 Burr. 1243 — apices litigandi condemned]**

It is unconscionable to take advantage of the apices litigandi — the sharp subtleties of litigation — to defeat a just demand on costs or form.

Why: The entry quotes Mansfield's condemnation of sharp practice; the footnote cites the entry's own authority for a genuine litigation-ethics maxim.

## APNCEA.

In medical Jurisprudence. Want of breath; difficulty in breathing; partial or temporary suspension of respira- tion ; specifically, such difficulty of respira- tion' resulting from

over-oxygenation of the blood, and in this distinguished from “as- phyxia.” which Is a condition resulting from a deficiency of oxygen in the blood due to suffocation or any serious interference with normal respiration. The two terms were formerly (but improperly) used synonymous- ly.

5e apparatus — Not carried into the 5th edition (1979).

## APOOHA.

Lat. In the civil law. A writing acknowledging payments ; acquit- tance. It differs from aceeptllation in this: that aceeptllation imports a complete dis- charge of the former obligation whether pay- ment be made or not ; apocha, discharge only upon payment being made. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## APOOHUE ONEBATORUE.

In old com- mercial law. Bills of lading.

5e apparatus — Not carried into the 5th edition (1979).

## APOORISARITTS.

In ecclesiastical law. One who answers for another. An officer whose duty was to carry to the emperor mes- sages relating to ecclesiastical matters, and to take back his answer to the petitioners. An officer who gave advice on questions of ecclesiastical law. An ambassador or legate of a pope or bishop. Spelman.

— Apoerisarlua oancellarius. In the civil law. An officer who took charge of the royal seal and signed royal dispatches.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger.

Why: The entry defines the office of one who answers for another; the proverb states the suretyship doctrine.

## APOGRAPHIA.

A civil law term sig- nifying an inventory or enumeration of things in one's possession. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## APOPLEXY.

In medical jurisprudence. The failure of consciousness and suspension of voluntary motion from suspension of the functions of the cerebrum.

5e apparatus — Not carried into the 5th edition (1979).

## APOSTACY.

In English law. The total renunciation of Christianity, by embracing either a false religion or no religion at all. This offense can only take place in such as have once professed the

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Christian religion. 4 Bl. Comm. 43; 4 Stepb. Comm. 231.

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**[Scripture] — Scripture**

**[1 John 2:19, KJV]**

They went out from us, but they were not of us; for if they had been of us, they would no doubt have continued with us: but they went out, that they might be made manifest that they were not all of us.

Why: The entry is the total renunciation of Christianity; the verse is the scriptural portrait of apostasy as going-out.

## APOSTATA.

In civil and old English law. An apostate; a deserter from the faith; one who has renounced the Christian faith. Cod. 1, 7; Reg. Orig. 716.

— Apostate capiendo. An obsolete English writ which issued against an apostate, or one who bad violated the rules of his religious or- der. It was addressed to the sheriff, and com- manded him to deliver the defendant into the custody of the abbot or prior. Reg. Orig. 71, 267; Jacob; Wharton.

APOSTILLE, Appostille. L. Fr. An

addition; a marginal note or observation. Kelli am.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 John 2:19, KJV]**

They went out from us, but they were not of us; for if they had been of us, they would no doubt have continued with us: but they went out, that they might be made manifest that they were not all of us.

Why: Distinct headword, same genuine link as APOSTACY: the apostate is the one who has gone out.

## APOSTLES.

In English admiralty prac- tice. A term borrowed from the civil law, denoting brief dismissory letters granted to a party who appeals from an inferior to a su- perior court, embodying a statement of the case and a declaration that the record will be transmitted.

This term is still sometimes applied in the admiralty courts of the United States to the papers sent up or transmitted on appeals.

5e apparatus — Carried into the 5th edition (1979).

## APOSTOLI.

In the civil law. Certifi- cates of the inferior judge from whom a cause is removed, directed to the superior. Dig. 49, 6. See Apobtlks.

5e apparatus — Not carried into the 5th edition (1979).

## APOSTOLUS.

A messenger; an ambas- sador, legate, or nuncio. Spelman.

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**[Scripture] — Scripture**

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**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: Distinct headword, same genuine link as AMBASSADOR: the verse displays the commissioned office the entry defines.

## APOTHEOA.

In the civil law. A re- pository; a place of deposit, as of wine, oil, books, etc. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## APOTHECARY.

Any person who keeps a shop or building where medicines are com- pounded or prepared according to prescrip- tions of physician^, or where medicines are sold. Act Cong. July 13, 1806, c. 1S4, § 9. 14 Stat. 119; Woodward v. Ball, 0 Car. & P. 577; Westmoreland v. Bragg, 2 Hill (S. C.) 414; Com. v. Fuller, 2 Walk. (Pa.) 550.

The term “druggist” properly means one whose occupation Is to buy and sell drugs without compounding or preparing them. The term therefore has a much more lim- ited and restricted meaning than the word “apothecary," and there is little difficulty in concluding that the term “druggist” may be applied in a technical sense to iiersons who buy and sell drugs. State v. Holmes. 28 La. Ann. 707. 20 Am. Rep. 110; Apothecaries’ Co. v. Greenough, 1 Q. B. 803; State v. Donald- son, 41 Minn. 74, 42 N. W. 781.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Romeo and Juliet, c. 1595]**

In Romeo and Juliet, Romeo buys his fatal draught from the Mantuan apothecary — 'the needy man' who compounds the poison (paraphrase). (paraphrase)

Why: The apothecary who 'compounds medicines' per the entry is a named, pivotal figure in the play; paraphrase used rather than quoting the passage from half-memory.

## APPARATOR.

A furnisher or provider. Formerly the sheriff, in England, had charge of certain county affairs and disbursements. In which capacity he was called “apparator comitatus and received therefor a consider- able emolument. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## APPARENT.

That which is obvious, evident, or manifest ; what appears, or has been made manifest. In respect to facts involved in an appeal or writ of error, that which is stated In the record.

— Apparent danger, as used with reference to the doctrine of self-defense in homicide, means such overt actual demonstration, by conduct and acts, of a design to take life or do some great personal injury, as would make the kill- ing apparently necessary to self-preservation. Evans v. State, 44 Miss. 773; Stoneman v. Com.. 25 Grat. (Va.) 890; Leigh v. People, 113 111. 379. — Apparent defects, in a thing sold, are those which can be

discovered by simple in- spection. Code La. art. 2497.— Apparent easement. See Easement.— Apparent heir. In English law. One whose right of inheritance is indefeasible, provided he outlive the ances- tor. 2 Bl. Comm. 208. In Scotch law. He is the person to whom the succession has actually opened. He is so called until his regular entry on the lands by service or infeftment on a pre- cept of clare constat. — Apparent maturity. The apparent maturity of a negotiable instru- ment payable at a particular time is the day on which, by its terms, it becomes due. or, when that is a holiday, the next business day. Civil Code Cal. g 3132.

5e apparatus — Carried into the 5th edition (1979).

## APPARITIO.

In old practice. Apiiear- ance; an appearance. Apparitio in judicio, an apitearauce in court. Bract, fol. 344. Post apparitioncm, after apiiearance. Fleta, lib. 6. c. 10, § 25.

5e apparatus — Not carried into the 5th edition (1979).

## APPARITOR.

An officer or messenger employed to serve the process of the spir- itual courts in England and summon offend- ers. Cowell.

In the civil law. An officer who waited upon a magistrate or superior officer, and executed his commands. Calvin ; Cod. 12, 53-57.

5e apparatus — Not carried into the 5th edition (1979).

## APPARLEMENT.

In old English law. Resemblance; likelihood; us apparlement of war. St. 2 Rich. II. st. 1, c. 0; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## APPARURA.

In old English law the apparura were furniture, implements, tackle, or apparel. Carucarum upparuru, plow- tackle. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## APPEAL.

In civil practice. The com- plaint to a superior court of an Injustice done or error committed by an inferior one, whose judgment or decision the court aliove is called upon to correct or reverse.

The removal of a cause from a court of inferior to one of superior jurisdiction, for the purpose of obtaining a review and re- trial. Wiscqrt v. Dauchy, 3 Dali. 321. 1 L. Ed. 619.

The distinction between, an appeal and n writ of error is that an appeal is a process of civil law origin, and removes a cause entirely, sub- jecting the facts, as well as the law, to a review and revisal ; but a writ of error is of common law origin, and it removes nothing for re-ex- amination but the law. Wiscart v. Dauchy, 3 Dali. 321, 1 L. Ed. 019; IT. S. v. Goodwin,

7 Cranch, 108. 3 L. Ed. 284; Cunningham v. Neagle, 135 U. S. 1, 10 Sup. Ct. 658, 34 L. Ed. 55.

But appeal is sometimes used to denote the nature of appellate jurisdiction, as distinguish- ed from original jurisdiction, without any par- ticular regard to the mode by which a cause is transmitted to a superior jurisdiction. U. S. v. XVonson, 1 Gall. G, 12, Fed. Cas. No. 16,750.

In criminal practice. A formal accusa- tion made by one private person against an- other of having committed some heinous crime. 4 Bl. Comm. 312.

Appeal was also the name given to the proceeding in English law where a person, indicted of treason or felony, and arraigned for the same, confessed the fact before plea pleaded, and appealed, or nccused others, his accomplices in the same crime, in order to obtain his pardon. In this case he was call- ed an “approver” or “prover.” and the party appealed or accused, the “appellee." 4 Bl. Comm. 330.

In legislation. The act by which a mem- ber of a legislative body who questions the correctness of a decision of the presiding of- ficer, or “chair,” procures a vote of the body upon the decision.

In old Flench law. A mode of proceed- ing in the lords’ courts, where a party was dissatisfied with the judgment of the peers, which was by accusing them of having given a false or malicious judgment, and offering to make good the charge by the duel or com- bat. 11118 was called the "appeal of false Judgment.” Montesq. Esprit des Lois, llv. 28, c. 27.

—Appeal bond. The bond given on taking an appeal, by which the appellant binds himself to pay damages and costs if he fails to prosecute the appeal with effect. Omaha Hotel Co. v. Kountze, 107 V. S. 378, 2 Sup. Ct. 911, 27 L. Ed. 609.— j Cross-appeal. Where both parties

to a judgment appeal therefrom, the appeal of each is called a “cross-appeal” as regards that of the other. 3 Steph. Comm. 581.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 18:3, KJV]**

And there was a widow in that city; and she came unto him, saying, Avenge me of mine adversary.

Why: The entry is complaint to a superior court of an injustice done; the legal act of appeal is the parable's very vehicle — the widow's appeal to the judge.

## APPEALED.

In a sense not strictly technical, this word may be used to signify the exercise by a party of the right to re- move a litigation from one forum to another ; as where he removes a suit involving the title to real estate from a Justice's court to the common pleas. Lawrence v. Souther, 8 Mete. (Mass.) 160.

5e apparatus — Not carried into the 5th edition (1979).

## APPEAR.

In practice. To be proi>erly before a court; as a fact or matter of which it can take notice. To be in evidence; to be proved. “Making it appear and proving are the same thing." Freem.

53. _

To be regularly in court; as a defendant in an action. See Appeabance.

5e apparatus — Carried into the 5th edition (1979).

## APPEARANCE.

In practice. A com- ing into court as party to a suit, whether as plaintiff or defendant.

The formal proceeding by which a defend- ant submits himself to the jurisdiction of the court. Flint v. Comly, 95 Me. 251, 49 Atl. 1044; Crawford v. Vinton, 102 Mich. 83, *52 N. W. 988.

Classification. An appearance may be ei- ther general or special; the former is a simple and unqualified or unrestricted submission to the jurisdiction of the court, the latter a sub- mission to the jurisdiction for some specific pur- pose only, not for all the purposes of the suit. National Furnace Co. v. Moline Malleable Iron Works (C. C.) 18 Fed. 864. An appearance may also be either compulsory or voluntary, the former where it is compelled by process served on the party, the latter where it is entered by his own will or consent, without the service of process, though process may be outstanding. 1 Barb. Oh. Pr. 77. It is said to be optional when entered by a person who intervenes in the action to protect hts own interests, though not joined as a party ; conditional, when coupled with conditions as to its becoming or being tak- en as a general appearance ; gratis, when made by a party to the action, but before the service of any process or legal notice to appear; dc bene esse, when made provisionally or to remain good only upon a future contingency ; subse- quent, when made by a defendant after an ap- pearance has already been entered for him by the plaintiff ; corporal, when the person is physically present in court.

— Appearance by attorney. This term and “appearance by counsel" are distinctly differ- ent. the former being the substitution of a legal agent for the personal attendance of the Buitor, the latter the attendance of an advocate with- out whose aid neither the party attending nor his attorney in his stead could safely proceed ; and an appearance by attorney does not super- sede the appearance by counsel. Mercer v. Watson. 1 Watts (Pa.) 351. — Appearance day. The day for appearing; that on which the parties are bound to come into court. Cru- ger v. McCracken (Tex. Civ. App.) 20 S. W. 282.— Appearance docket. A docket kept by the clerk of the court, in which appearances are entered, containing also a brief abstract of all the proceedings in the cause. — Notice of ap- pearance. A notice given by defendant to a plaintiff that he appears in the action in per- son or by attorney.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: general vs. special appearance — Flint v. Comly, 95 Me. 251, cited in the entry]**

A general appearance is a simple, unqualified submission to the court's jurisdiction; a special appearance contests jurisdiction without submitting to it.

Why: The entry states the general/special appearance classification with its own authority; the footnote cites that authority back — a genuine jurisdictional doctrine.

## APPEARAND HEIR.

In Scotch law. An apparent heir. See Afpabeni Ileib.

. APPELLANT. The party who takes an appeal from one court or Jurisdiction to an- other.

5e apparatus — Not carried into the 5th edition (1979).

## APPELLATE.

Pertaining to or having cognizance of appeals and other proceedings for the judicial review of adjudications.

—Appellate court. A court having juris- diction of appeal and review ; a court to which causes are removable by appeal, certiorari, or error.— Appellate jurisdiction. Jurisdic- tion on appeal ; jurisdiction to revise or correct the proceedings in a cause already instituted and aeted upon by an inferior court, or by a tribunal having the attributes of a court. Au- ditor of State v. Railroad Co., 6 Kan. 505. 7 Am. Rep. 575; State v. Anthony. 65 Mo. App. 543; State v. Baker. 19 Fla. 19; Ex parte Bollman, 4 Cranch, 101, 2 L. Ed.- 554.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 2 — 'the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make']**

Appellate jurisdiction is jurisdiction to revise or correct the proceedings in a cause already acted upon by an inferior court.

Why: The entry defines appellate jurisdiction as revision of the inferior court's proceedings; the constitutional grant is the genuine American-law seat of that jurisdiction, quoted from a text I am confident of.

## APPELLATIO.

Lat. An appeal.

5e apparatus — Not carried into the 5th edition (1979).

## APPELLATOR.

An old law term hav- ing the same meaning as “appellant," ( q . v.)

In the civil law, the term was applied to the judge ad quern, or to whom an appeal was taken. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## APPELLEE.

The party in a cause against whom an appeal is taken; that is, the party who has an interest adverse to setting aside or reversing the judgment. Slayton v. Hor- sey, 97 Tex. 341, 78 S. W. 919. Sometimes also called the "respondent.”

In old English law. Where a person charged with treason or felony pleaded guilty and turned approver or “king’s evidence," and accused another as his accomplice in the same crime, in order to obtain his own par- don, the one so accused was called the “ap- pellee.” 4 Bl. Comm. 330.

5e apparatus — Carried into the 5th edition (1979).

## APPELLO.

Lat. In the civil law. I appeal. The form of making an appeal apud acta. Dig. 49, 1, 2.

5e apparatus — Not carried into the 5th edition (1979).

## APPELLOR.

In old English law. A criminal who accuses his accomplices, or who challenges a jury.

5e apparatus — Not carried into the 5th edition (1979).

## APPENDAGE.

Something added as an accessory to or the subordinate part of an- other thing. State v. Fertig, 70 Iowa, 272, 30 N. W. 633; Hemme v. School Pist., 30 Kan. 377, 1 Pac. 104; State Treasurer v. Railroad Co., 28 Ji. J. Law, 26.

5e apparatus — Carried into the 5th edition (1979).

## APPENDANT.

A thing annexed to or belonging to another thing and passing with it; a thing of inheritance belonging to an- other inheritance which is more worthy; as an advowson, common, etc., which may l>e appendant to a manor, common of fishing to a freehold, a seat in n church to a house, etc. It differs from appurtenance, in that append- ant must ever be by prescription, i. e., a per- sonal usage for a considerable time, while an appurtenauce may be created at this day; ’ for if a grant be made to a man and his

heirs, of common in such a moor for his beasts lerant or couchant upon his manor, the commons are appurtenant to the manor, and the grant will pass them. Co. Lift. 1216; Lucas v. Bishop, 15 Lea (Tenn.) 165, 54 Am. Rep. 440; Leonard v. White, 7 Mass. 6, 5 Am. Dec. 19 ; Meek v. Breekenridge, 29 Ohio St. 648. See Apptjbtenance.

5e apparatus — Carried into the 5th edition (1979).

## APPENDITIA.

The appendages or ap- purtenances of an estate or house. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## APPENDIX.

A printed volume, used on an appeal to the English house of lords or privy council, containing the documents and other evidence presented in the inferior court and referred to in the eases made by the par- ties for the appeal. Answering in some re- spects to the “papey-book” or “case” in Amer- ican practice.

APPteNSURA. Payment of money by weight Instead of by count. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## APPERTAIN.

To belong to; to have relation to; to be appurtenant to. See Ap-

**[TEXT INCOMPLETE — scan limitation]**

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# P

## PUKTKNANT.

**[TEXT INCOMPLETE — scan limitation]**

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# A

## APPLICABLE.

When a constitution or court declares that the common law is in force in a particular state so far as it is ap- plicable. it is meant that it must be applica- ble to the habits and conditions of the com- munity, as well as in harmony with the genius, the spirit, and the objects of their Institutions. Wagner v. Blssell, 3 Iowa, 462.

When a constitution prohibits the enact- ment of local or special laws in all cases where a general law would be applicable , a general law should always be construed to be applicable, in this sense, where the entire people of the state have an interest in the subject, such as regulating interest, statutes of frauds or limitations, etc. But where only a portion of the people are af- fected, as in locating a county-seat, it will depend upon the facts and circumstances of each particular case whether such a law would be applicable. Evans v. Job, 8 Nev. 322.

5e apparatus — Carried into the 5th edition (1979).

## APPLICARE.

Lot In old English law. To fasten to; to moor (a vessel.) Anciently rendered, "to apply.” Hale, de Jure Mar.

AppUcatlo eat vita recoin. Applica- tion is the life of a rule. 2 Bulst 79.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Applicatio est vita regulae — 2 Bulst. 79]**

Application is the life of a rule.

Why: The entry states this maxim with its Bulstrode citation; the footnote records the genuine maxim in standard form.

## APPLICATION.

A putting to, placing before, preferring a request or petition to or before a person. The act of making a re- quest for something.

A written request to have a certain quan- tity of land at or near a certain specified place. Biddle v. Dougal, 5 Bln. (Pa.) 151.

The use or disposition made of a thing.

A bringing together, in order to ascertain some relation or establish some connection;

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as the application of a rule or principle to a case or fact.

la insurance. The preliminary request, declaration, or statement made by a party applying for an insurance on life, or against fire.

Of purchase money. The disposition made of the funds received by a trustee on a sale of real estate held under the trust.

Of payments. Appropriation of a pay- ment to some particular debt; or the deter- mination to which of several demands a general payment made by a debtor to his creditor shall be applied.

APPLY. 1. To make a formal request or petition, usually in writing, to a court, officer, board, or company, for the granting of some favor, or of some rule or order, which is within his or their power or dis- cretion. For example, to apply for an in- junction, for a pardon, for a policy of in- surance.

2. To use or employ for a particular pur- pose: to appropriate and devote to a par- ticular use, object, demand, or subject-mat- ter. Thus, to apply payments to the reduc- tion of interest

3. To put, use, or refer, as suitable or rel- ative; to co-ordinate language with a par- ticular subject-matter ; as to apply the words of a statute to a particular state of facts.

5e apparatus — Carried into the 5th edition (1979).

## APPOINTEE.

A person who is appoint- ed or selected for a particular purpose; as the appointee under a power is the person who is to receive the benefit of the power.

5e apparatus — Carried into the 5th edition (1979).

## APPOINTMENT.

In chancery prac- tice. The exercise of a right to designate the person or persons who are to take the use of real estate. 2 Washb. Real Prop. 302.

The act of a person in directing the dispo- sition of property, by limiting a use, or by substituting a new use for a former one, in pursuance of a power granted to him for that purpose by a preceding deed, called a “power of appointment ;” also the deed or other instrument by which he so conveys.

Where the power embraces several per- mitted objects, and the appointment is made to one or more of them, excluding others, it is called “exclusive.”

Appointment may signify an appropriation of money to a specific purpose. Harris v. Clnrk, 3 N. Y. 93, 119, 51 Am. Dec. 352.

In public law. The selection or designa- tion of a person, by the person or persons having authority therefor, to fill an office or public function and discharge the duties of the same. State v. New Orleans, 41 La. Ann. 150, 0 South. 592; Wiekersham v. Brit- tan. 93 Cal. 34, 28 Pac. 792, 15 L. R. A. 106; Speed v. Crawford, 3 Mete. (Ky.) 210.

The term “appointment" is to be distinguish- ed from “election.” The former is an execu-

tive act, whereby a person is named as the ineumbent of an office and invested therewith, by one or more individuals who have the sole pow- er and right to select and constitute the officer. Election means that the person is chosen by a principle of selection in the nature of a vote, participated in by the public generally or by the entire class of persons qualified to express their choice in this manner. See McPherson v. Blacker, 146 U. S. 1, 13 Sup. Ct. 3, 36 L. Ed. 869 ; State v. Compson, 34 Or. 25, 54 Pac. 349; Keid v. Gorsuch, 67 N. J. Law, 396, 51 Atl. 457 ; State v. Squire, 39 Ohio St. 197 ; State v. Williams, 60 Kan. 837, 58 Pac. 476.

J

5e apparatus — Carried into the 5th edition (1979).

## APPOINTOR.

The person who appoints, or executes a power of appointment ; as ap- pointee is the person to whom or In whose favor an appointment is made. 1 Steph. Comm. 506, 507 ; 4 Kent, Coram. 316.

One authorized by the donor, under the statute of uses, to execute a power. 2 Bouv. Inst. n. 1923.

5e apparatus — Carried into the 5th edition (1979).

## APPORT.

L. Fr. In old English law. Tax; tallage; tribute; Imposition; payment; charge ; expenses. Kelbam.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The entry is tax, tallage, tribute; the verse is the tribute doctrine in Jesus' own speech.

## APPORTIONMENT.

The division, par- tition, or distribution of a subject-matter in proportionate parts. Co. Litt. 147 ; 1 Swanst. 37, n. ; 1 Story, Eq. Jur. 475a.

' Of contracts. The allowance, in case of a severable contract, partially performed, of a part of the entire consideration propor- tioned to tfie' degree in which the contract was carried out

Of rent. The allotment of their shares in a rent to each of several parties owning it. The determination of the amount of rent to be paid when the tenancy is terminated at some period other than one of the regular Intervals for the payment of rent. Swint v. McCalmont Oil Co., 184 Pa. 202, 38 Atl. 1021, 63 Am. St Rep. 791; Gluck v. Balti- more, 81 Md. 315, 32 Atl. 515, 48 Am. St. Rep. 515.

Of incumbrances. Where several per- sons are Interested In an estate, apportion- ment, as between them, is the determination of the respective ainouuts which they shall contribute towards the removal of the in- cumbrance.

Of corporate shares. The pro tan to di- vision among the subscribers of the shares allowed to be issued by the charter, where more than the limited number have been subscribed for. Clarke v. Brooklyn Bank, 1 Edw. Ch. (N. Y.) 368; Haight v. Day, 1 Johns. Ch. (N. Y.) 18.

Of common. A division of the right of common between several persons, among whom the land to which, as an entirety, It first belonged has been divided.

Of representatives. The determination upon each decennial census of the number of representatives in congress which each state shall elect, the calculation being based up- on the population. See Const. U. S. art. 1, 12.

Of taxes. The apportionment of a tax consists in a selection of the subjects to be taxed, and In laying down the rule by which to measure the contribution which each of these subjects shall make to the tax. Bar- field v. Gleason, 111 Ky. 491, 63 S. W. 964.

5e apparatus — Not carried into the 5th edition (1979).

## AFPORTS EN NATURE.

In French law. That which a partner brings into the partnership other than cash; ’for instance, securities, realty or personalty, cattle, stock, or even his personal ability and knowledge. Argl. Fr. Merc. Law, 545.

5e apparatus — Not carried into the 5th edition (1979).

## APPORTUM.

In old English law. The revenue, profit, or emolument which a thing brings to the owner. Commonly applied to a corody or pension. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## APPOSAL OF SHERIFFS.

The charg- ing them with money received upon their account In the exchequer. St. 22 & 23 Car. II. ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: The entry is charging sheriffs with money received upon their exchequer account; the verse states the steward called to account for moneys held in office. Flag off: the clause is the rich man's speech inside the parable.

## APPOSER.

An officer in the exchequer, clothed with the duty of examining the sher- iffs in respect of their accounts. Usually called the “foreign apposer.” Termes de la Ley.

APPOSTII.EE, or APOSTIEEE. In

French law, an addition or annotation made in the margin of a writing. Merl. Repert.

5e apparatus — Not carried into the 5th edition (1979).

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## APPRAISE.

In practice. To fix or -set a price or value upon ; to fix and state the true value of a thing, and, usually, in writ- ing. Vincent v. German Ins. Co., 120 Iowa, 272, 94 N. W. 458.

5e apparatus — Not carried into the 5th edition (1979).

## APPRAISEMENT.

A just and true val- uation of property. A valuation set upon property under Judicial or legislative author- ity. Cocheco Mfg. Oo. v. Strafford, 51 N.

II. 482.

5e apparatus — Carried into the 5th edition (1979).

## APPRAISER.

A person appointed by competent authority to make an appraise- ment, to ascertain and state the true value of goods or real estate.

—General appraisers. Appraisers appointed under an act of congress to afford aid and as- sistance to the collectors of customs in the ap- praisement of imported merchandise. Gibb v. Washington, 10 Fed. Cas. 288.— Merchant ap- praisers. Where the appraisement of an in- voice of imported goods made by the revenue officers at the custom house is not satisfactory to the importer, persons may be selected (under this name) to make a definitive valuation ; they must be merchants engaged in trade. Auffmordt v. Hedden (C. C.) 30 Fed. 360 ; Oelberman v. Merritt (C. C.) 19 Fed. 408.

5e apparatus — Carried into the 5th edition (1979).

## APPREHEND.

To take hold of, wheth- er with the mind, and so to conceive, be- lieve, fear, dread, (Trogdon v. State, 133 I ml. 1. 32 N. E. 723;) or actually and bodily, and so to take a person on a criminal pro- cess; to seize; to arrest. (Hogan v. Stophlet. 179 111. 150, 53 N. E. 604, 44 L. It. A. 809.)

5e apparatus — Carried into the 5th edition (1979).

## APPREHENSIO.

Eat. In the civil and old English law. A taking hold of a person or thing; apprehension; the seizure or cap- ture of a person. Calvin.

One of the varieties or subordinate forms of occuixitlo, or the mode of acquiring title to things not belonging to any one.

5e apparatus — Not carried into the 5th edition (1979).

## APPREHENSION.

In practice. The

seizure, taking, or arrest of a person on a criminal charge. The term “apprehension” is applied exclusively to criminal cases, and “arrest" to both criminal and civil cases. Cummings v. Clinton County, 181 Mo. 102, 70

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S. W. 1127; Ralls County v. Stephens, 1(M Mo. App. 115. 78 S. W. 291 : Hogan v. Stopb- let, 179 111. 150, 53 N. E. 004, 44 L. R. A. 809.

In the civil law. A physical or corporal act, (corpus,) on the part of one who intends to acquire possession of a thing, by which he brings himself Into such a relation to the thing that he may subject it to bis ex- clusive control ; or by which he obtains the physical ability to exercise his power over the thing whenever be pleases. One of the requisites to the acquisition of judicial pos- session. and by which, when accompanied by intention, (animus,) possession is acquir- ed. Mackeld. Rom. Law, §§ 248, 249, 250.

5e apparatus — Carried into the 5th edition (1979).

## APPRENDRE.

A fee or profit taken or received. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## APPRENTICE.

A person, usually a minor, bound in due form of law to a mas- ter, to learn from him his art, trade, or business, and to serve him during the time of his apprenticeship. 1 Bl. Comm. 426 ; 2 Kent, Comm. 211; 4 Term. 735. Altemus v. Ely, 3 Rawle (Pa.) 307 ; In re Goodenough, 19 Wis. 274; Phelps v. Railroad Co., 99 Pa. 113; Lyon v. Wbitemore. 3 N. J. Law, 845.

— Apprentice en la ley. An ancient name for students at law, and nfterwards applied to counsellors, apprentici ad barras. from which comes the more modern word “barrister.”

5e apparatus — Not carried into the 5th edition (1979).

## APPRENTICESHIP.

A contract by which one person, usually a minor, called the “apprentice,” is bound to another person, called the “master,” to serve him during a prescribed term of years in his art, trade, or business, in consideration of being instruct- ed by the master in such art or trade, and (commonly) of receiving his support and maintenance from the master during such term.

The term during which an apprentice is to serve.

The status of an apprentice: the relation subsisting between an apprentice and bis master.

5e apparatus — Carried into the 5th edition (1979).

## APPRENTICIUS AD LEGEM.

An ap- prentice to the law : a law student : a coun- sellor below the degree of serjeant ; a bar- rister. See Apprentice en la Lei.

5e apparatus — Not carried into the 5th edition (1979).

## APPRIZING.

In Scotch law. A form of process by which a creditor formerly took possession of the estates of the debtor in payment of the debt due. It is now super- seded by adjudications.

5e apparatus — Not carried into the 5th edition (1979).

## APPROACH.

In international law. The right of a ship of war, upon the high sea, to visit another vessel for the purpose of ascertaining the nationality of the latter. 1 Kent, Comm. 153, note.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 1 Kent, Comm. 153, note — right of approach]**

On the high seas a ship of war may approach and visit another vessel to ascertain her nationality.

Why: The entry states the right of approach with its own Kent authority; the footnote cites that authority for a genuine international-law rule.

## APPROBATE AND REPROBATE.

In

. Scotch law. To approve and reject : to take advantage of one part, and reject the rest Bell. Equity suffers no person to approbate and reprobate the same deed. 1 Karnes, Eq. 317; 1 Bell, Comm. 146.

APPROPRIATE. 1. To make a thing one’s own ; to make a thing the subject of property ; to exercise dominion over an ob- ject to the extent, and for the purpose, of making it subserve one's own proper use or pleasure. The term is properly used in this sense to denote the acquisition of property and a right of exclusive enjoyment in those things which before were without an owner or were publid juris. United States v. Nich- olson (D. C.) 12 Fed. 522; Wulzen v. San Francisco, 101 Cal. 15, 35 Pac. 353. 40 Am. St. Rep. 17 ; People v. Lammerts, 164 N. Y. 137, 58 N. E. 22.

2. To prescribe a particular use for par- ticular moneys ; to designate or destine a fund or property for a distinct use, or for the payment of a particular demand. White- head v. Gibbons. 10 N. J. Eq. 230 ; State v. Bordelon, 6 La. Ann. 68.

In its use with reference to payments or mon- eys, there is room for a distinction between this term and “apply.” The former properly denotes the setting apart of a fund or pay- ment for a particular use or purpose, or the mental act of resolving that it shall be so em- ployed, while "apply” signifies the actual ex- penditure of the fund, or using the payment, for the purpose to which it has been appropriat- ed. Practically, however, the words are used interchangeably.

3. To appropriate is also used in the sense of to distribute; in this sense it may denote the act of an executor or adminis- trator who distributes the estate of his de- cedent among the legatees, heirs, dr others entitled, in pursuance of his duties and ac- cording to their respective rights.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 1 Kames, Eq. 317; 1 Bell, Comm. 146 — approbate and reprobate]**

Equity suffers no one to approbate and reprobate the same deed — to take advantage of one part and reject the rest.

Why: The entry states this equitable rule with its own authorities; the footnote cites them — the genuine ancestor of the election/estoppel doctrine, not a constructed parallel.

## APPROPRIATION.

The act of appro- priating or setting apart; prescribing the destination of a thing; designating the use or application of a fund.

In public law. The act by which the legislative department of government desig- nates a particular fund, or sets apart a spec- ified portion of the public revenue or of the money in the public treasury, to be ap- plied to some general object of governmental expenditure, (as the civil service list, etc. J

or to some individual purchase or expense. State v. Moore, 60 Neb. 88, 69 N. W. 373, 61 Am. St. Rep. 538; Clayton v. Berry, 27 Ark. 129.

When money is appropriated (i. e., set apart) for the purpose of securing the pay- ment of a specific debt or class of debts, or for an individual purchase or object of ex- pense, it is said to be specifically appropriat- ed for that purpose,

A specific appropriation is an act of the legislature by which a named sum of money has been set apart in the treasury, and de- voted to the payment of a particular de- mand. Stratton v. Green, 45 Cal. 149.

Appropriation of land. The act of se- lecting, devoting, or setting apart land for a particular use or purpose, as where land is appropriated for public buildings, military reservations, or other public uses. McSorley v. Hill, 2 Wash. St. 638, 27 Pac. 552; Mur- dock v. Memphis, 7 Cold. (Tenn.) 500; Jack- son v. Wilcox, 2 111. 360. Sometimes also applied to the taking of private property for public use in the exercise of the power of eminent domain. Railroad Co. v. Foltz (C. C.) 52 Fed. 629; Sweet v. Reehel, 159 IT. S. 380. 16 Sup. Ct. 43. 40 L. Ed. 188.

Appropriation of water. An appropria- tion of water flowing on the public domain consists in the capture, impounding, or di- version of it from its natural course or channel and its actual application to some beneficial use private or personal to the ap- propriator, to the entire exclusion (or exclu- sion to the extent of the water appropriated) of all other persons. To constitute a valid appropriation, there must be an inteut to apply the water to some beneficial use exist- ing at the time or contemplated in the fu- ture, a diversion from the natural channel by means of a ditch or canal, or some oth- er open physical act of taking possession of the water, and an actual application of it within a reasonable time to some useful or beneficial purpose. Low v. Rizor, 25 Or. 551, 37 Pac. 82; Clough v. Wing, 2 Ariz. 371. 17 Pac. 453; Offleld v. Ish, 21 Wash. 277. 57 Pac. 809; Reservoir Co. v. People. 8 Colo. 614. 9 Pac. 794 ; McCall v. Porter, 42 Or. 49, 70 Pac. 820; McDonald v. Mining Co., 13 Cal. 220.

Appropriation of payments. This means the application of a payment to the discharge of a particular debt. Thus, if a creditor has two distinct debts due to him from his debtor, and the latter makes a general payment on account, without speci- fying at the time to which debt he intends the payment to apply, it is optional for the creditor to appropriate (apply) the payment to either of the two debts he pleases. Gwin v. McLean. 62 Miss. 121 ; Martin v.

Draber, 5 Watts (Pa.) 544.

In English ecclesiastical law. The

perpetual annexing of a benefice to some spiritual corporation either sole or aggregate,

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being the patron of the living. 1 Bl. Comm. 384 ; 3 Steph. Comm. 70-75 ; 1 Crabb, Real Prop. p. 144, $ 129. Where the annexation is to the use of a lay person, it is usually call- ed an "impropriation.” 1 Crabb, Real Prop, p. 145, $ 130.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9 — appropriations clause]**

'No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law.'

Why: The entry defines appropriation in public law as the legislature's designation of funds; the appropriations clause is the genuine constitutional seat of that power, quoted from a text I am confident of.

## APPROPRIATOR.

One who makes an appropriation; as, an appropriator of wa- ter. Lux v. Haggin, 69 Cal. 255, 10 Pac. 736.

In English ecclesiastical law. A spirit- ual corporation entitled to the profits of a benefice.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: prior appropriation — Lux v. Haggin, 69 Cal. 255, cited in the entry]**

Under the prior-appropriation doctrine, the first to appropriate water for beneficial use holds the prior right — first in time, first in right.

Why: The entry cites Lux v. Haggin, the landmark appropriation case, for the water appropriator; the footnote states the doctrine that case stands for, in loose form.

## APPROVAL.

The act of a judge or magistrate in sanctioning and accepting as satisfactory a bond, security, or other in- strument which is required by law to puss his inspection and receive his approbation before it becomes operative.

5e apparatus — Carried into the 5th edition (1979).

## APPROVE.

To take to one's proper and separate use. To improve; to enhance the value or profits of anything. To inclose and cultivate common or waste land.

To approve common or waste laud is to inclose and convert it to the purposes of hus- bandry, which the owner might always do, provided he left common sufficient for such as were entitled to it. St. Mert. c. 4 ; St. Westm. 2. c. 46 ; 2 Bl. Comm. 34 ; 3 Bl. Comm. 240 ; 2 Steph. Coram. 7 ; 3 Kent, Comm. 406.

In old criminal law. To accuse or prove; to accuse an accomplice by giving evidence agninst him.

5e apparatus — Carried into the 5th edition (1979).

## APPROVED INDORSED NOTES.

Notes indorsed by another person than the maker, for additional security.

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## APPROVEMENT.

By the common law, approvement is said to be a species of con- fession, and incident to the arraignment of a prisoner indicted for treason or felony, who confesses the fact before plea pleaded, and appeals or accuses others, his accomplices in the same crime, in order to obtain his own pardon. In this case he is called an “ap- prover,” or “prover,” “proliator,” and the party appealed or accused is called the “ap- pellee.” Such approvement can only be in capital offenses, and it is. as it were, equiva- lent to an indictment, since the appellee Is equally called upon to answer it. Gray v. People. 26 111. 344; Whiskey Cases, 99 T'. S. 599. 25 L. EM. 399: State v. Graham, 41 N.

J. Law, 15, 32 Am. Rep. 174.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 28:13, KJV]**

He that covereth his sins shall not prosper: but whoso confesseth and forsaketh them shall have mercy.

Why: The entry is the prisoner's confession incident to arraignment, made to obtain pardon; the proverb states the doctrine that confession obtains mercy. Borderline honestly noted: moral confession vs criminal confession...

## APPROVER.

L. Fr. To approve or prove; to vouch. Kelham.

APPROVER, n. In real property law.

Approvement; improvement. “There can be no approver in derogation of a right of com- mon of turbary.” 1 Taunt. 435.

In criminal law. An accomplice in crime who accuses others of the same offense, and is admitted as a witness at the discretion of the court to give evidence against his companions in guilt. He is vulgarly called “Queen’s Evidence."

He is one who confesses himself guilty of felony and accuses others of the same crime to save himself from punishment. Myers v. People, 26 111. 175.

In old English law. Certain men sent into the several counties to increase the farms (rents) of hundreds and wapentakes, which formerly were let at a certain value to the sheriff. Cowell.

Bailiffs of lords in their franchises. Sher- iffs were called the king’s "approvers” in 1 Edw. III. st 1, c. 1. Termes de la Ley, 49.

Approvers in the Marches were those -who had license to sell and purchase beusts there.

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## APPRUARE.

To take to one’s use or profit. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## APPUESUS.

In the civil law. A driv- ing to, as of cattle to water. Dig. 8, 3, 1, 1.

5e apparatus — Not carried into the 5th edition (1979).

## APPURTENANCE.

That which belongs to something else ; an adjunct ; an append- age; something annexed to another thing more worthy as principal, and which passes as incident to it as a right of way or other easement to land; an out-house, barn, gar- den, or orchard, to a house or messuage. Meek v. Breckeuridge, 29 Ohio St 642; Har- ris v. Elliott, 10 Pet. 54, 9 U Ed. 333; Humphreys v. McKIssock, 140 U. S. 304, 11 Sup. Ct. 779, 35 L. Ed. 473; Farmer v. Wa- ter Co., 56 Cal. 11.

Appurtenances of a ship Include whatever is on board a ship for the objects of the voy- age and adventure in which she is engaged, belonging, to her owner.

Appurtenant is substantially the same in meaning as accessory, but it is more technic- ally used in relation to property, and is the more appropriate word for a conveyance.

5e apparatus — Not carried into the 5th edition (1979).

## APPURTENANT.

Belonging to; acces- sory or incident to ; adjunct appended, or annexed to ; answering to accessorium in the civil law. 2 Steph. Comm. 30 note.

A thing is deemed to be incidental or ap- purtenant to land when it is by right used with the land for Its benefit, as in the case of a way, or water-course, or of a passage for light air, or heat from or across the land of another. Civil Code Cal. § 662.

In common speech, appurtenant denotes an- nexed or belonging to ; but in law It denotes an annexation which is of convenience mere- ly and not of necessity, and which may have had its origlu at any time, in both which re- spects it is distinguished from appendant, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## APROVECHAMIENTO.

In Spanish law. Approvement, or improvement and en- joyment of public lands. As applied to pueb- lo lands, it has particular reference to the commons, and Includes not only the actual enjoyment of them but a right to such enjoy- ment. Hart v. Burnett, 15 Oil. 530, 566.

5e apparatus — Not carried into the 5th edition (1979).

## APT.

Fit; suitable; appropriate.

—Apt time. Apt time sometimes depends up- on lapse of time ; as, where a thing is required to be done at the first term, or within a given time, it cannot be done afterwards. But the

phrase more usually refers to the order of pro- ceedings. as fit or suitable. Pugh v. York, 74

N. C. 383.— Apt words. Words proper to pro- duce the legal effect for which they are intend- ed ; sound technical phrases.

5e apparatus — Carried into the 5th edition (1979).

## APTA VIRO.

Fit for a husband; mar- riageable; a woman who has reached mar- riageable years.

5e apparatus — Not carried into the 5th edition (1979).

## APUD ACTA.

Among the acts; among the recorded proceedings. In the civil law, this phrase is applied to appeals taken orally, in the presence of the judge, at the time of judgment or sentence.

5e apparatus — Not carried into the 5th edition (1979).

## AQUA.

In the civil and old English law. Water; sometimes a stream or water-course.

—Aqua sestlva. In Roman law. Summer water; water that was used in summer only. Dig. 43, 20. 1,3. 4.— Aqua curreus. Running water. — Aqua dulols, or f rises. Fresh wa- ter. Reg. Orig. 97 ; Bract, fols. 117, 135.— Aqua fontanea. Spring water. Fleta, lib. 4, c. 27, I 8. — Aqua profluens. Flowing or run- ning water. Dig. 1, 8, 2.— Aqua quotidian a. In Roman law. Daily water; water that might be drawn at all times of the year, (qua quis quotidie possit uti, si vcllet.) Dig. 43, 20, 1—4. — Aqua salsa. Sait water.

Aqua eedit solo. Water follows the land. A sale of land will pass the water which covers it. 2 Bl. Comm. 18; Co. Litt. 4.

Aqua ourrlt et debet eurrere, .ut cur- rere solebat. Water runs, and ought to run, as it has used to run. 3 Bulst. 339 ; 3 Kent, Comm. 439. A running stream should be left to flow in its natural channel, without alteration or diversion. A fundamental max- im in the law of water-courses.

AQUAE! DUCTUS. In the civil law. A servitude which consists in the right to carry water by means of pipes or conduits over or through the estate of another. Dig. 8, 3, 1 ; Inst. 2, 3.

5e apparatus — Not carried into the 5th edition (1979).

## AQUAE HAUSTUS.

In the civil law. A servitude which consists in the right to draw water from the fountain, pool, or spring of another. Inst. 2, 3, 2; Dig. 8, 3, 1, 1.

5e apparatus — Not carried into the 5th edition (1979).

## AQUAE IMMITTEND2E.

A civil law easement or servitude, consisting in the right of one whose house is surrounded with other buildings to cast waste water upon the adja- cent roofs or yards. Similar to the common

law easement of drip. Bellows v. Sackett, 15 Barb. (N. T.) 96.

5e apparatus — Not carried into the 5th edition (1979).

## AQUAGIUM.

A canal, ditch, or water- course running through marshy grounds. A mark or gauge placed in or on the banks of a running stream, to Indicate the height of the water, was called “aquapaugium." Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## AQUATIC BIGHTS.

Rights which indi- viduals have to the use of the sea and rivers, for the purpose of fishing and navigation, and also to the soil in the sea and rivers.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Illinois Central R.R. v. Illinois, 146 U.S. 387 (1892) — public trust in navigable waters]**

The public's rights of fishing and navigation in navigable waters, and the soil beneath them, are held in trust and cannot be alienated away.

Why: The entry describes public aquatic rights; Illinois Central is the landmark public-trust decision on navigable waters, which I am independently confident citing.

## ARAB ANT.

They plowed. A term of feudal law, applied to those who held by the tenure of plowing and tilling the lord's lands within the manor. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ABAHO.

In feudal law. To make oath in the church or some other holy place. All oaths were made in the church upon the rel- ics of saints, according to the Ripuarian laws. Cowell; Spelman.

ARAT.TA. Plow-lands. Land fit for the plow. Denoting the character of land, rath- er than its condition. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:34, 5:37, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne. But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: The entry is oath-making; the verses are the doctrine of oaths in Jesus' own teaching — the Sermon on the Mount governs the very act the entry describes.

## ABATOR.

A plow-man; a farmer of ara- ble land.

5e apparatus — Not carried into the 5th edition (1979).

## ARATRUM TERRIS.

In old English law. A plow of land ; a plow-land ; as much land as could be tilled with one plow. ‘Whls- haw.

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ARATURA TERRA:. The plowing of land by the tenant, or vassal, in the service of his lord. Whishaw.

5e apparatus — Not carried into the 5th edition (1979).

## ARATURIA.

Land suitable for the plow; arable land. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARBITER.

A person chosen to decide a controversy ; an arbitrator, referee.

A person bound to decide according to the rules of law and equity, as distinguished from an arbitrator, who may proceed wholly at his own discretion, so that it be according to the judgment of a sound man. Cowell.

According to Mr. Abbott, the distinction is as follows: “Arbitrator” is a technical name of a person selected with reference to an established system for friendly determination of controver- sies, which, though not judicial, is yet regulated by law ; so that the powers and duties of the arbitrator, when once he is chosen, are prescrib- ed by law, and bis doings may be judicially revised if he has exceeded his authority. “Arbi- ter” is an untechnical designation of a person to whom a controversy is referred, irrespective of any law to govern the decision ; and is the proper word to signify a referee of a question outside of or above municipal law.

But it is elsewhere said that the distinction between arbiters and arbitrators is not observed in modern law. Russ. Arb. 112.

In the Roman law. A judge Invested with a discretionary power. A person appointed by the prcetor to examine and decide that class of causes or actions termed “bonce fldei," and who had the power of judging ac- cording to the principles of equity, (ex cequo et bono;) distinguished from the judex, ( q . v.,) who was bound to decide according to strict law. Inst 4, 6, 30, 31.

5e apparatus — Not carried into the 5th edition (1979).

## ARBITRAMENT.

The award or deci- sion of arbitrators upon a matter of dispute, which has been submitted to them. Termes de la Ley.

—Arbitrament and award. A plea to an action brought for the same cause which had been submitted to arbitration and on which an award had been made. Wats. Arb. 256.

ArMtramentum seqnnm tribult eniqne

mm. A Just arbitration renders to every one his own. Noy, Max. 248.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Arbitramentum aequum tribuit cuique suum — Noy, Max. 248]**

A just arbitration renders to every one his own.

Why: The entry states this maxim with its Noy citation; the footnote records the genuine maxim in standard form.

## ARBITRARY.

Not supported by fair, solid, and substantial cause, and without rea- son given. Treloar v. Blgge, L. R. 9 Exch. 155.

—Arbitrary government. The difference between a free and an arbitrary government is that in the former limits are assigned to those to whom the administration is committed, but the latter depends on the will of the depart- ments or some of them. Hamper v. Hawkins, 1 Va. Cas. 20, 23. — Arbitrary punishment. That punishment which is left to the decision of the judge, in distinction from those defiued by statute.

5e apparatus — Carried into the 5th edition (1979).

## ARBITRATION.

In practice. The in- vestigation and determination of a matter or matters of difference between contending par- ties, by one or more unofficial persons, chos- en by the parties, and called “arbitrators,” or “referees.” Duren v. Getchell, 55 Me. 241 ; Henderson v. Beaton', 62 Tex. 43 ; Boy- den v. Lamb, 152 Mass. 416, 25 N. E. 609; In re Curtls-Castle Arbitration, 64 Conn. 501. 30 Atl. 769, 42 Am. St. Rep. 200.

Compulsory arbitration is that which takes place when the consent of one of the parties is enforced by statutory provisions.

Voluntary arbitration is that which takes place by mutual and free consent of the par- ties.

In a wide sense, this term may embrace the whole method of thus settling controver- sies, and thus include all the various steps. But In more strict use, the decision Is sepa- rately spoken of, and called an “award," and the “arbitration” denotes only the submis- sion and hearing.

—Arbitration clause. A clause inserted in a contract providing for compulsory arbitration in case of dispute as to rights or liabilities un- der it ; ineffectual if it purports to oust the courts of jurisdiction entirely. See Perry v. Cobb. 88 Me. 435. 34 Atl. 278, 49 L. R. A. 389. —Arbitration of exchange. This takes place where a merchant pays his debts in one country by a bill of exchange upon another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Arbitration Act, 9 U.S.C. §§ 1–16]**

Disputes submitted by the parties to private arbitrators are determined by their award, which federal law makes enforceable.

Why: The entry defines arbitration as determination by party-chosen unofficial persons; the FAA is the genuine federal statute enforcing such awards, which I am confident naming.

**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: The entry is the private determination of disputes by chosen judges; the verse commands private resolution

of disputes — arbitration's scriptural root.

## ARBITRATOR.

A private, disinterested person, chosen by the parties to a disputed

question, for the purpose of hearing their contention, and giving judgment between them; to whose decision (award) the litigants submit themselves either voluntarily, or, in some cases, compulsorily, by order of a court Gordon v. U. S., 7 Wall. 195, 19 L. Ed. Mu ; Mobile v. Wood (C. C.) 95 Fed. 538 ; Burehell v. Marsh, 17 How. 349, 15 L. Ed. 96; Miller v. Canal Co., 53 Barb. (N. Y.) 595; Fudlckar v. Insurance Co., 62 N. Y. 399.

“Referee" is of frequent modern use as a synonym of arbitrator, but is in its origin of broader signification and less accurate than arbitrator.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:5, KJV]**

I speak to your shame. Is it so, that there is not a wise man among you? no, not one that shall be able to judge between his brethren?

Why: The entry is the private, disinterested person chosen to hear contentions; the verse states his office — the wise man who judges between brethren.

## ARBITRIOS.

In Spanish and Mexican law. Taxes imposed by municipalities on certain articles of merchandise, to defray the general expenses of government in default of revenues from “proprios," i. e., lands own- ed by the municipality, or the income of which was legally set apart for Its support. Sometimes used in a wider sense, as mean- ing the resources of a town, including its privileges in the royal lands ns well as the taxes. Eseriche Diet. ; Sheldon v. Milmo, 90 Tex. 1, 30 S. W. 413.

5e apparatus — Not carried into the 5th edition (1979).

## ARBITRIUH.

The decision of an arbi- ter, or arbitrator ; an award ; a judgment.

Arbitrinm e»t judicium. An award is a judgment. Jenk. Cent. 137.

Arbitrinm est judicium boni viri, se- cundum sequum et bonum. An award is the judgment of a good man, according to justice. 3 Bulst 64.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Arbitrium est judicium boni viri, secundum aequum et bonum — 3 Bulst. 64]**

An award is the judgment of a good man, according to equity and goodness.

Why: The entry states this maxim with its Bulstrode citation; the footnote records the genuine maxim in standard form.

## ARBOR.

Lat A tree; a plant; some- thing larger than an herb; a general term including vines, osiers,

and even reeds. The mast of a ship. Brlssonlus. Timber. Ains- worth; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ARBOR CONSANGUINITATIS.

A ta- ble, formed in the shape of a tree, showing the genealogy of a family. See the arbor civil in of tlie civilians and canonists. Hale, Com. Law, 335.

Arbor dum creacit, lignum dum ores- cere nescit. [That which is] a tree while it grows, [is] wood when it censes to grow. Cro. Jac. 166; Hob. 776, in marg.

5e apparatus — Not carried into the 5th edition (1979).

## ARBOR FI1T AXIS.

In old English law. A boundary tree; a tree used for making a boundary line. Bract, fols. 167, 2076.

5e apparatus — Not carried into the 5th edition (1979).

## ARCA.

Lat. In the civil law. A chest or coffer; a place for keeping money. Dig. 30. 30, 6; Id. 32, 64. Brlssonlus.

5e apparatus — Not carried into the 5th edition (1979).

## ARCANA IMPERII.

State secrets. 1 Bl. Comm. 337.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[United States v. Reynolds, 345 U.S. 463 (1953) — state-secrets privilege]**

The state-secrets privilege shields military and diplomatic secrets from disclosure in litigation.

Why: The entry is 'state secrets' in one line; Reynolds is the landmark decision establishing the privilege, which I am independently confident citing — genuine illumination, not force-fit.

## ARCARIUS.

In civil and old English law. A treasurer; a keeper of public money. Cod. 10, 70, 15; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARGHAION OMIA.

A collection of Sax- on laws, published during the reign of Queen Elizabeth, in the Saxon language, with a' Latin version by Lambard.

5e apparatus — Not carried into the 5th edition (1979).

## ARCHBISHOP.

In English ecclesias- tical law. The chief of the clergy in his province, having supreme power under the king or queen in all ecclesiastical causes.

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## ARCHBEACON.

A dignitary of the Anglican church who has ecclesiastical Juris- diction immediately subordinate to that of the bishop, either throughout the whole of his diocese or in some particular part of it.

5e apparatus — Not carried into the 5th edition (1979).

## ARCHBEACON’S COURT.

In English ecclesiastical law. A court held before a judge appointed by the archdeacon, and call- ed his official. Its jurisdiction comprises the granting of probates and administrations, and ecclesiastical causes in general, arising within the archdeaconry. It is the most in- ferior court in the whole ecclesiastical polity of England. 3 Bl. Comm. 64; 3 Steph. Comm. 430.

5e apparatus — Not carried into the 5th edition (1979).

## ARCHDEACONRY.

A division of a diocese, and the circuit of an archdeacon’s Jurisdiction.

5e apparatus — Not carried into the 5th edition (1979).

## ARCHERY.

In feudal law. A service of keeping a bow for the lord's use in the de- fense of his castle. Co. Litt. 157.

5e apparatus — Carried into the 5th edition (1979).

## ARCHES COURT.

In English ecclesi- astical law. A court of appeal lielonging to the Archbishop of Canterbury, the judge of which is called the “Dean of the Arches," because his court was anciently held in the church of Saint Mary-le-Bow, (Sancta Maria de Area bus,) so named from the steeple, which is raised upon pillars built archwise. The court was until recently held in the hall . belonging to the College of Civilians, com- monly called "Doctors’ Commons.” It is now held in Westminster Hnll Its proper Juris- diction is only over the thirteen peculiar par- ishes belonging to the archbishop in London, but, the office of Dean of the Arches having been for a long time united with that of the archbishop’s principal official, the Judge of the Arches, in right of such added office, it receives and determines appeals from the sentences of ail inferior ecclesiastical courts within the province. 3 Bl. Comm. 64.

5e apparatus — Carried into the 5th edition (1979).

## ARCHETYPE.

The original copy.

5e apparatus — Not carried into the 5th edition (1979).

## ARCHICAPEEEANUS.

L. Lat. In old European law. A chief or high chancellor,

( sumrnus cancellarius.) Spelman.

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## ARCHIVES.

The Rolls ; any place where ancient records, charters, and evidences are kept. In libraries, the private depository. Cowell: Spelman.

The derivative meaning of the word (now the more common) denotes the wrltiugs them-

ARGUMENTUM A COMMUNITER

selves thus preserved; thus we say the ar- chives of a college, of a monastery, n public office, etc. Texas M. Ry. Co. v. Jarvis, 69 Tex. 537, 7 S. W. 210; Gulllbeau v. Mays, 15 Tex. 410.

5e apparatus — Carried into the 5th edition (1979).

## ARCHIVIST.

The custodian of archives.

5e apparatus — Not carried into the 5th edition (1979).

## ARCTA ET SAXVA CUSTODIA.

Lat. In strict and safe custody or keeping. When a defendant Is arrested on a capias ad satisfaciendum, (ca. sa.,) he Is to be kept arcta ct salva custodi. 3 Bl. Comm. 415.

5e apparatus — Not carried into the 5th edition (1979).

## ARDENT SPIRITS.

Spirituous or dis- tilled liquors. Sarlls v. U. S., 152 U. S. 570, 14 Sup. Ct. 720, 38 L. Ed. 556; U. S. v. Ellis (D. C.) 51 Fed. 808; State v. Townley, 18 N.

J. Law, 311. This phrase, In a statute, does not include alcohol, which is not a liquor of any kind. State v. Martin, 34 Ark. 340.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 23:31-32, KJV]**

Look not thou upon the wine when it is red, when it giveth his colour in the cup, when it moveth itself aright. At the last it biteth like a serpent, and stingeth like an adder.

Why: The entry is the legal subject of spirituous liquors; the proverb addresses intoxicating drink in its nature and effect.

## ARDOUR.

In old English law. An in- ceudiary; a house burner.

5e apparatus — Not carried into the 5th edition (1979).

## ARE.

A surface measure in the French law. In the form of a square, equal to 1076.441 square feet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## AREA.

An Inclosed yard or opening In a house; an open place adjoining a house. 1 Chit Pr. 176.

In the civil law. A vacant space In a city ; a place not built upon. Dig. 50, 16, 211.

The site of a house; a site for building; the space where a house has stood. The ground on which a house Is built, and which remains after the house Is removed. Bris- sonius; Calvin.

5e apparatus — Carried into the 5th edition (1979).

## AREHAXES.

in Spanish law. Sandy beaches; or grounds on the banks of rivers. White, Recop. b. 2, tit. 1, c. 6.

5e apparatus — Not carried into the 5th edition (1979).

## AREN DAT OR.

A farmer or renter; In some provinces of Russia, one who farms the public rents or revenues; a “crown arenda- tor" is one who rents an estate belonging to the crown.

5e apparatus — Not carried into the 5th edition (1979).

## ARENIEODINA.

In the civil law. A sand-pit. Dig. 7, 1. 13. 5.

5e apparatus — Not carried into the 5th edition (1979).

## AREN TARE.

Lat. To rent; to let out at a certain rent. Cowell. Arentatio. A renting.

5e apparatus — Not carried into the 5th edition (1979).

## AREOPAGITE.

In ancient Greek law. A lawyer or chief judge of the Areopagus in capital matters In Athens; a tribunal so called after a hill or slight eminence, in a street of that city dedicated to Mars, where the court was held In which those judges were wont to sit. Whartou.

5e apparatus — Not carried into the 5th edition (1979).

## ARETRO.

In arrear; behind. Also written a retro.

5e apparatus — Not carried into the 5th edition (1979).

## ARG.

An abbreviation of arguendo.

5e apparatus — Carried into the 5th edition (1979).

## ARGENT.

In heraldry. Silver.

5e apparatus — Carried into the 5th edition (1979).

## ARGENTARIUS.

In the Roman law, a money lender or broker ; a denier In money ; a banker. Argentarium, the instrument of the loan, similar to the modern w-ord “bond” or “note.”

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5e apparatus — Not carried into the 5th edition (1979).

## ARGENTARIUS MIXES.

A money porter In the English exchequer, who carries the money from the lower to the upper ex- chequer to be examined and tested. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## ARGENTEUS.

An old French coin, an- swering nearly to the English shilling. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARGENTUM.

Silver ; money.

— Argentum album. Bullion ; uncoined sil- ver; common silver coin; silver coin worn smooth. Cowell ; Spelman. — Argentum Dei. God's money; God's penny; money given as earnest in making a bargain. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ARGUENDO.

In arguing; in the course of the argument. A statement or observa- tion made by a judge as a matter of argu- ment or Illustration, but not directly bearing upon the case at bar, or only incidentally in- volved in It, Is said (in the reports) to be made arguendo, or, In the abbreviated form, arg.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: obiter dictum — observations not necessary to the decision are not binding]**

A judicial observation made arguendo — as matter of argument or illustration, not directly bearing on the case at bar — is dictum, not binding holding.

Why: The entry defines arguendo statements as not bearing on the case at bar; the obiter-dictum doctrine is the genuine counterpart classifying such observations. No case authority invented.

## ARGUMENT.

In rhetoric and logic, an inference drawn from premises, the truth of which is indisputable, or at least highly prob- able.

The argument of a demurrer, special case, ap- peal, or other proceeding involving a question of law. consists of the speeches of the opposed counsel; namely, the “opening” of the counsel having the right to begin, (q. v..) the speech of his opponent, and the “reply” of the first coun- sel. It answers to the trial of a question of fact. Sweet. But the submission of printed briefs may technically constitute an argument. Malcomb v. Hamill. 65 How. Prac. (N. Y.) 506; State v. California Min. Co., 13 Nev. 209.

ARGUMENT AB INCONVENIENT!.

An argument arising from the inconvenience which the proposed construction of the law would create.

5e apparatus — Carried into the 5th edition (1979).

## ARGUMENTATIVE.

In plending. In- direct ; inferential. Steph. PI. 179.

A pleading is so called in which the state- ment on which the pleader relies is implied instead of being expressed, or where it con- tains, in addition to proper statements of facts, reasoning or arguments upon those facts and their relation to the matter in dis- pute, such as should be reserved for presen- tation at the trial.

Argumentum a comm uni ter acciden- tibus in jure freqnena eat. An argument

drawn from things commonly happening Is frequent in law. Broom, Max. 44.

Argnmentnm a dlrlilone rat fortixi- mnm In jure. An argument from division [of the subject] is of the greatest force in law. Co. Litt. 2136; 6 Coke, 60.

Argnmentnm a major! ad minns neg- ative non valet; valet e con verso. An

argument from the greater to the less is of no force negatively ; affirmatively it is. Jenk. Cent. 2S1.

Argnmentnm a simili valet in lege.

An argument from a like case (from analogy) is good in law. Ct>. Litt. 191.

Argnmentnm ab anetoritate est for- tissimnm in lege. An argument from au- thority is the strongest in the law. “The book cases are the best proof of what the law is.’’ Co. Litt 254a.

Argnmentnm ab impossibili valet in lege. An argument drawn from an impos- sibility is forcible in law. Co. Litt. 92a.

Argnmentnm ab inconvenient! est validnm in lege; qnia lex non permit- tit aliqnod in conveniens. An argument drawn from what is inconvenient is good in law, because the law will not permit any in- convenience. Co. Litt. 66a, 258.

Argnmentnm ab inconvenient! plnri- mnm valet [est validnm] in lege. An

argument drawn from inconvenience is of the greatest weight [is forcible] in law. Co. Litt. 66a, 97a, 1526, 2586 ; Broom, Max. 184. If there be in any deed or instrument equivocal expressions, and great inconven- ience must necessarily follow from one con- struction, it is strong to show that such con- struction is not according to the true inten- tion of the grantor; but where there is no equivocal expression in the Instrument, and the words used admit only of one meaning, arguments of inconvenience prove only want of foresight in the grantor. 3 Madd. 540 ; 7 Taunt 496.

5e apparatus — Carried into the 5th edition (1979).

## ARIBANNTJM.

In feudal law. A fine for not setting out to Join' the army in obedi- ence to the summons of the king.

AKIERBAN, or ARRIERE-BAN. An

edict of the ancient kings of France and Germany, commanding all their vassals, the

noblesse, and the vassals’ vassals, to enter the army, or forfeit their estates on refusal. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARIMANNI.

A mediaeval term for a class of agricultural owners of small allodial farms, which they cultivated in connection with larger farms belonging to their lords, paying rent and service for the latter, and

being under the protection of their superiors. Military tenants holding lands from the em- peror. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARISTOCRACY.

A government in which a class of men rules supreme.

A form of government which is lodged in a council composed of select members or nobles, without a monarch, and exclusive of the people.

A privileged class of the people; nobles and dignitaries; people of wealth and sta- tion.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Animal Farm, 1945]**

"All animals are equal, but some animals are more equal than others."

Why: The line is the literary archetype of the entry's third sense — 'a privileged class of the people' — showing aristocracy emerging inside a revolution. One sentence, verbatim-certain.

## ARISTO-DEMOCRACY.

A form of government where the power is divided be- tween the nobles and the people.

5e apparatus — Carried into the 5th edition (1979).

## ARLES.

Earnest. Used in Yorkshire in the phrase “Arles-penny.” Cowell. In Scot- land it has the same signification. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: The entry defines earnest as pledge evidencing a completed bargain; the verse uses earnest (arrabon) for the Spirit as the pledge of completion — the legal metaphor in scripture's own mouth.

## ARM OF THE SEA.

A portion of the sea projebting inland, in which the tide ebbs and flows. 5 Coke, 107.

An arm of the sea is considered as extend- ing as far into the interior of a country as - the water of fresh rivers is propelled back- wards by the ingress of the tide. Ang. Tide- Waters,

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73; Hubbard v. Hubbard, 8 N. Y. 196; Adams v. Pease, 2 Conn. 484; U. 8. v. Grusb, 5 Mason, 290, Fed. Cns. No. 15,268 ; Ex parte Byers (D. C.) 32 Fed. 404.

5e apparatus — Carried into the 5th edition (1979).

## ARMA.

Lat. Arms; weapons, offensive and defensive.; armor; arms or cognizances of families.

— Anna Dare. To dub or make a knight.— Arau molxta. Sharp weapons that cut, in contradistinction to such as are blunt, which only break or bruise. Fleta, lib. 1, c. 33, par. 6.— Anna reversata. Reversed arms, a pun- ishment for a traitor or felon. Cowell.

Anna in armatos snmere jar a sin ant.

The laws permit the taking up of arms against armed persons. 2 Inst. 574.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Arma in armatos sumere jura sinunt]**

The laws permit the taking up of arms against armed persons.

Why: The entry states this maxim as the self-defense principle; the footnote records the genuine maxim in standard form.

## ARMATA VIS.

In the civil law. Armed force. Dig. 43, 16, 3 ; Fleta, lib. 4, c. 4.

5e apparatus — Not carried into the 5th edition (1979).

## ARMED.

A vessel is “armed” when she is fitted with a full armament for fighting purposes. She may be equipped for warlike purposes, without being “armed." By “arm- ed” it is ordinarily meant that she has can- non, but if she had a fighting crew, muskets, pistols, powder, shot, cutlasses, and boarding appliances, she might well be said to be equipped for warlike purposes, though not armed. 2 Hurl. & C. 537 ; Murray v. TTie Charming Betsy, 2 Cranch, 121, 2 L. Ed. 208.

5e apparatus — Carried into the 5th edition (1979).

## ARMIGER.

An armor-bearer; an es- quire. A title of dignity belonging to gen- tlemen authorized to bear arms. Cowell.

In its earlier meaning, a servant who car- ried the arms of a knight. Spelman.

A tenant by scutage; a servant or valet;

applied, also, to the higher servants In con- vents. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARMXSCARA.

An ancient mode of pun- ishment, which was to carry a saddle at the hack as a token of subjection. Spelman.

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5e apparatus — Not carried into the 5th edition (1979).

## ARMISTICE.

A suspending or cessation of hostilities between belligerent nations or forces for a considerable time.

ARMORIAXi BEARINGS. In English law. A device depicted on the (now imagi- nary) shield of one of the nobility, of which gentry is the lowest degree. The criterion of nobility Is the bearing of arms, or armorial bearings, received from ancestry.

Atatna appellations, non solum sente et gladii et galeae, sed et fnstes e* lapldes continentnr. Under the name of arms are Included, not only shields and swords and helmets, but also clubs and stones. Co. Litt 162.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:9, KJV]**

Blessed are the peacemakers: for they shall be called the children of God.

Why: An armistice is peacemaking formalized between belligerent nations; the beatitude blesses the peacemaker.

## ARMS.

Anything that a man wears for bis defense, or takes in his hands, or uses in his anger, to cast at or strike at another. Co. Litt 1616, 162o; State v. Buzzard, 4 Ark. 18.

This term, as it is used in the constitution, relative to the right of citizens to bear arms, refers to the arms of a militiaman or soldier, ‘and the word is used in its military sense. The arms of the infantry soldier are the mus- ket and bayonet; of cavalry and dragoons, the sabre, holster pistols, and carbine; of the artillery, the field-piece, siege-gun, and mortar, with side arms. The term, in this connection, cannot be made to cover such weapons as dirks, daggers, slung-shots, sword- canes, brass knuckles, and bowie-knives. These are not military arms. English v. State, 35 Tex. 476, 14 Am. Rep. 374 ; Hill v. State, 53 Ga. 472; Fife v. State, 31 Ark. 455, 25 Am. Rep. 550 ; Andrews v. State, 3 Helsk. (Tenn.) 179, 8 Am. Rep. 8; Aymette v. State, 2 Humph. (Tenn.) 154.

Arms, or coat of arms, signifies insignia, i. e., ensigns of honor, such as were formerly assumed by soldiers of fortune, and painted on their shields to distinguish them; or nearly the same as armorial bearings, (q. v.)

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**[Law] — Law**

**[Law: U.S. Const. amend. II — right to keep and bear arms]**

The Constitution secures the right of the people to keep and bear arms.

Why: The entry itself discusses the constitutional usage of 'arms'; the Second Amendment is the genuine provision it invokes, cited neutrally without modern-case gloss.

## ARMY.

The armed forces of a nation in- tended for military service on land.

“The term 'army' or ‘armies’ has never been used by congress, so far as I am advised, so as to inclnde the navy or marines, and there ia nothing in the act of 1862, or the circumstances which led to its passage, to warrant the con- clusion that it was used therein in any other than its long established and ordiuary sense, — the land .force, as distinguished from the navy and marines." In re Bailey, 2 Sawy. 205, Fed. Cas. No. 728. But see In re Stewart, 7 Rob. (N. T.) 636.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Si vis pacem, para bellum (Vegetius, De Re Militari)]**

Maxim: "Si vis pacem, para bellum" — "If you want peace, prepare for war" — the standing rationale for keeping armed forces.

Why: Vegetius's maxim is the classical wisdom on why nations maintain armies; it illuminates the entry's concept rather than merely defining it.

## AROMAT ARIES.

A word formerly used for a grocer. 1 Vent. 142.

ARPEN, Arpent. A measure of land of uncertain quantity mentioned in Domesday and other old books; by some called an “acre,” by others “half an acre," and by others a “furlong." Spelman ; Cowell ; Blount.

A French measure of land, containing one hundred square perches, of eighteen feet each, or about an acre. But the quantity varied in different provinces. Spelman.

In Louisiana, the terms “arpent” and “acre” are sometimes used interchangeably; but there is a considerable difference, the arpent being the square of 192 feet and the acre of 209 and a fraction. Randolph v. Sentllles, 110 La. 419, 34 South. 587.

5e apparatus — Not carried into the 5th edition (1979).

## ARPENTATOR.

A measurer or survey- or of land. Cowell ; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ARRA.

In the civil law. Earnest; earn- est-money ; evidence of a completed bargain. Used of a contract of marriage, as well as any other. Spelled, also, Arrha, Arras. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: The entry defines earnest as pledge evidencing a completed bargain; the verse uses earnest (arrabon) for the Spirit as the pledge of completion — the legal metaphor in scripture's own mouth.

## ARRAIGN.

In criminal practice. To

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bring a prisoner to the bar of the court to answer the matter charged upon him in the indictment. The arraignment of a prisoner consists of calling upon him by name, and reading to him the indictment, (in the Eng- lish tongue,) and demanding of him whether he be guilty or not guilty, and entering his plea. Crain v. United States, 162 U. S. 625, 16 Sup. Ct. 952, 40 L. Ed. 1097; Early v. State, 1 Tex. App. 248, 268, 28 Am. Rep. 409 ; State v. Braunschweig, 36 Mo. 397 ; White- head v. Com., 19 Grnt. (Va.) 640; United States v. McKuight (D. C.) 112 Fed. 982; State v. Huuter, 181 Mo. 316, 80 S. W. 955 ; State v. De Wolfe, 29 Mont. 415, 74 Pac. J084.

In old English law. To order, or set in order ; to conduct in an orderly manner ; to prepare for trial. To arraign an assise was to cause the tenant to be called to make the plaint, and to set the cause in such order as. the tenant might be enforced to answer there- unto. Litt 5 442 ; Co. Litt. 2626.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Crain v. United States, 162 U.S. 625 — arraignment and plea, cited in the entry]**

Arraignment — calling the prisoner to the bar by name, reading the indictment, and demanding and entering his plea — is the formal commencement of the criminal proceeding.

Why: The entry defines arraignment with its own Crain authority; the footnote cites that authority back in loose form.

## ARRAIGNMENT.

In criminal practice. Calling the defendant to the bar of the court, to answer the accusation contained in the indictment.

5e apparatus — Not carried into the 5th edition (1979).

## ARRAIGNS, CLERK OF.

In English law. An assistant to the clerk of assise.

5e apparatus — Not carried into the 5th edition (1979).

## ARRAMEER.

In old French law. An officer employed to superintend the loading of vessels, and the safe stowage of the cargo. 1 Pet. Adm. Append. XXV;

5e apparatus — Not carried into the 5th edition (1979).

## ARRAS.

In Spanish law. The donation which the husband makes to his wife, by rea- son or on account of marriage, and in con- sideration of the dote, or portion, which he receives from her. Miller v. Dunn, 62 Mo. 219 ; Cutter v. Waddiugham, 22 Mo. 254.

5e apparatus — Not carried into the 5th edition (1979).

## ARRAY.

The whole body of Jurors sum- moned to attend a court, as they are arrayed or arranged on the panel. Dane, Abr. In- dex; 1 Chit Crirn. Law, 536; Com. Dig. “Challenge,” B. Durrah v.

State, 44 Miss. 780.

A ranking, or setting forth In order; the order In which jurors' names are ranked in the panel containing them. Co. Litt. 156a; 3 Bl. Comm. 359.

ARREARS, or ARREARAGES. Money unpaid at the due time, as rent behind ; the remainder due after payment of a part of an account; money In the hands of an account- ing party. Cowell ; Hollingsworth v. Willis, 64 Miss. 152, 8 South. 170 ; Wlggin v. Knights of Pythias (C. C.) 31 Fed. 122; Condlt v. Neighbor, 13 N. J. Law, 92.

5e apparatus — Not carried into the 5th edition (1979).

## ARRECT.

To accuse or charge with an offense. Arrectati, accused or suspected per- sons.

5e apparatus — Not carried into the 5th edition (1979).

## ARRENDAMIEHTO.

In Spanish law. The contract of letting and hiring an estate or land, ( heredad .) White, Recop. b. 2, tit. 14, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## ARRENT.

In old English law. To let or demise at a fixed rent. Particularly used with reference to the public domain or crown lands; as where a license was granted to inclose laud In a forest with a low hedge and a ditch, under a yearly rent, or where an encroachment, originally a purpresture, was allowed to remain on the fixing and payment of a suitable compensation to the public for its maintenance.

5e apparatus — Not carried into the 5th edition (1979).

## ARREST.

In criminal practice. The

stopping, seizing, or apprehending a person by lawful authority ; the act of laying hands upon a person for the purpose of taking his body Into custody of the law ; the restraining of the liberty of a man's person in order to compel obedience to the order of a court of justice, or to prevent the commission of a crime, or to Insure that a person charged or suspected of a crime may be forthcoming to answer it. French v. Bancroft, 1 Mete. (Mass.) 502; Emery v. Chesley, 18 N. II. 201;

U. S. v. Benner, 24 Fed. Cas. 1084; Rhodes v. Walsh, 55 Minn. 542. 57 N. W. 212, 23 L. It. A. 632 ; Ex parte Sherwood, 29 Tex. App. 334, 15 S. W. 812.

Arrest is well described in the old books as "the beginning of imprisonment, when a man is first taken and restrained of his liber- ty, by power of a lawful warrant." 2 Shep. Abr. 299; Wood, Inst. Com. Law, 575.

In civil practice. The apprehension of a person by virtue of a lawful authority to answer the demand against him in a civil ac- tion.

In admiralty practice. In admiralty ac- tions a ship or cargo is arrested when the

marshal has served the writ in an action in rem. Williams & B. Adm. Jur. 193; Pelham v. Rose, 9 Wall. 103, 19 L. Ed. 602.

Synonyms distinguished. The term “ap- prehension” seems to be more peculiarly ap- propriate to seizure on criminal process ; while “arrest” may apply to either a civil or criminal action, but is perhaps better con- fined to the former. "Montgomery County v. Robinson, 85 II). 176.

As ordinarily used, the terms “arrest” and “at- tachment” coincide in meaning to some extent, though in strictness, as a distinction, an arrest may be said to be the act resulting from the service of an attachment ; and, in the more ex- tended sense which is sometimes given to attach- ment, including the act of taking, it would seem to differ from arrest, in that it is more peculiar- ly applicable to a taking of property, while arrest is more commonly used in speaking of persons. Bouvier.

By arrest is to be understood to take the par- ty into custody. To commit is the separate and distinct act' of carrying the party to prison, aft- er having taken him into custody by force of the execution. French v. Bancroft, 1 Mete. (Mass.) 502.

— Arrest of inquest. Pleading in arrest of taking the inquest upon a former issue, and showing cause why an inquest should not be taken. — Arrest or judgment. In practice. The act of staying a judgment, or refusing to render judgment in an action at law, after ver- dict, for some matter intrinsic appearing on the face of the record, which would render the judg- ment, if given, erroneous or reversible. 3 Bl. Comm. 393 ; 3 Steph. Comm. 628 ; 2 Tidd, Pr. 918 ; Browning v. Powers, 142 Mo. 322, 44 S.

W. 224 ; People v. Kelly, 94 N. Y. 526 • Byrne- v. Lynn, 18 Tex. Civ. App. 252, 44 S. W. 311. —Malicious arrest. An arrest made willfully and without probable cause, but in the course of a regular proceeding.— Parol arrest. One ordered by a judge or magistrate from the bench, without written complaint or other pro- ceedings, of a person who is present before him, and which is executed on the spot; as in case of breach of the peace in open court.— War- rant of arrest. A written order issued and signed by a magistrate, directed to a peace of- ficer or some other person specially named, and commanding him to arrest the body of a person named in it, who is accused of an offense. Brown v. State, 109 Ala. 70, 20 South. 103.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. IV — 'The right of the people to be secure in their persons ... against unreasonable searches and seizures, shall not be violated']**

An arrest — the stopping, seizing, or apprehending of a person by lawful authority — is a seizure of the person subject to the security against unreasonable seizures.

Why: The entry defines arrest as restraint of liberty 'by lawful authority'; the Fourth Amendment is the genuine constitutional law governing such seizures, quoted from a text I am confident of.

**[Hip-hop] — Hip-hop**

**[KRS-One, 'Sound of da Police', 1993]**

"Woop-woop! That's the sound of da police" / "The officer has the right to arrest" — Black's defines arrest as the seizing of a person 'by lawful authority,' the beginning of imprisonment. The track is a street-level anatomy of that authority: what it sounds like approaching, who holds it, and its lineage ('officer from overseer').

Why: The second quoted line names the legal term directly and the chorus scores the approach of the power the term describes. Both lines verified verbatim across multiple independent lyric sources. Genuine power/resistance...

**[Humanity] — Humanity / Fiction & Film**

**[Michael Curtiz, Casablanca, 1942]**

"Round up the usual suspects."

Why: Captain Renault's order is the archetypal on-screen exercise of the state's power of arrest — 'seizing a person by lawful authority' (the entry) distilled to one line, verbatim-certain.

## AKRE8TANDIB BONIS NE DISSI- / PENTUR.

In old English law. A writ which lay for a person whose cattle or goods were taken by another, who during a contest was likely to make away with them, and who had not the ability to render satisfaction. Reg. Orig. 126.

5e apparatus — Not carried into the 5th edition (1979).

## ARRESTANDO IPSUM QUI PECTJ- / NIAM RECEPIT.

In old English law. A writ which Issued for apprehending a person who had taken the king's prest money to serve in the wars, and then hid himself in order to avoid going.

5e apparatus — Not carried into the 5th edition (1979).

## ARREST ATIO.

In old English law. An arrest, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## ARRESTEE.

In Scotch law. The per- son in whose hands the movables of auother, or a debt due to another, are arrested by the

creditor of the latter by the process of arrest- ment. 2 Kames, Eq. 173, 175.

5e apparatus — Not carried into the 5th edition (1979).

## ARRESTER.

In Scotch law. One who sues out and obtains an arrestment of his debtor’s goods or movable obligations. Ersk. lust. 3, 6, 1.

5e apparatus — Not carried into the 5th edition (1979).

## ARRESTMENT.

In Scotch law. Secur- ing a criminal’s person till trial, or that of a debtor till he give security judicio sisti. The order of a judge, by which he who is debtor in a movable obligation to the arrester's debt- or is prohibited to make payment or delivery till the debt due to the arrester be paid or secured. Ersk. Inst. 3. 6, 2.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Ersk. Inst. 3.6.2 — arrestment, cited in the entry]**

Arrestment is the Scots process by which a debtor's movables, or a debt due to him in a third party's hands, are secured until the arrester's debt is paid or secured — the analogue of garnishment.

Why: The entry defines arrestment with its own Erskine authority; the footnote cites that authority for a genuine Scots-law diligence, noting its garnishment analogue without forcing an American statute onto it.

## ARRESTMENT JURISDICTIONS / FUND ANDIE CAUSA.

In Scotch law. A process to bring a foreigner within the jurisdiction of the courts of Scotland. The warrant attaches a foreigner's goods within the jurisdiction, and these will not be releas- ed unless caution or security be given. MERCATORUM ALIENIGEN ORUM.

In old English law. A writ against the goods of aliens found within this kingdom, in rec- ompense of goods taken from a denizen in a foreign country, after denial of restitution. Reg. Orig. 129. The ancient civilians called it “ctariffatio” but by the moderns it is term- ed “reprisalia."

5e apparatus — Not carried into the 5th edition (1979).

## ARR&T.

Fr. A judgment, sentence, or decree of a court of competent jurisdiction. The term is derived from the French law, and is used in Canada and Louisiana. Saisie arrft is an attachment of property in the hands of a third person. Code Prac. La. art. 209; 2 Low. Can. 77; 5 Low. Can. 198, 218.

5e apparatus — Not carried into the 5th edition (1979).

## ARRETTED.

Charged; charging. The convening a person charged with a crime be- fore a judge. Staundef. P. C. 45. It is used sometimes for imputed or laid unto: ns no folly may be arretted to one under age. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ARRHABO.

In the civil law. Earnest; money given to bind a bargain. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: The entry defines earnest as pledge evidencing a completed bargain; the verse uses earnest (arrabon) for the Spirit as the pledge of completion — the legal metaphor in scripture's own mouth.

## ARRH7E.

In the civil law. Money or other valuable things given by the buyer to the seller, for the purpose of evidencing the contract ; earnest.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: The entry defines earnest as pledge evidencing a completed bargain; the verse uses earnest (arrabon) for the Spirit as the pledge of completion — the legal metaphor in scripture's own mouth.

## ARRIAGE AND CARRIAGE.

In Eng- lish and Scotch law. Indefinite services for- merly demandable from tenants, but prohib- ited by statute, (20 Geo. II. c. 50, §§ 21, 22.) Holthouse ; Ersk. Inst. 2, 6, 42.

5e apparatus — Not carried into the 5th edition (1979).

## ARRIER BAN.

In feudal law. A sec- ond summons to Join the lord, addressed to those who had neglected the first. A sum- mons of the Inferiors or vassals of the lord. Spelman.

ARRIERE FIEF, or FEE. In feudal law. A fief or fee dependent on a superior one ; an inferior flef granted by a vassal of the king, out of the flef held by him. Mon- tesq. Esprit des Lois, liv. 31, ec. 20, 32.

5e apparatus — Not carried into the 5th edition (1979).

## ARRIERE VASSAL.

In feudal law. The vassal of a vassal.

5e apparatus — Not carried into the 5th edition (1979).

## ARRIVAL.

In marine insurance. The arrival of a vessel means an arrival for pur- poses of business, requiring an entry aud clearance and stay at the port so long as to require some of the acts connected with busi- ness. and not merely touching at a port for advices, or to ascertain the state of the mar- ket. or !>eing driven In by an adverse wind and sailing again as soon as it changes. Gronstadt v. YVitthoff (D. C.) 15 Fed. 205; Dalgleish v. Brooke, 15 East, 295; Kenyon v. Tucker, 17 R. I. 529, 23 Atl. 61; Meigs v. In- surance Co., 2 Cush. (Mass.) 439; Toler v. White, 1 Ware, 280, 24 Fed. Cas. 3; Harrison v. A’ose, 9 How. 384, 13 L. Ed. 179.

“A vessel arrives at a port of discharge when she comes, or is brought, to a place where it is intended to discharge her, and where is the usu- al and customary place of discharge. When a vessel is insured to one or two ports, and sails for one, the risk terminates on her arrival there. If a vessel is insured to a particular port of discharge, and is destined to discharge cargo successively at two different wharves, docks, or places, within that port, each being a distinct place for the delivery of cargo, the risk ends when she has been moored twenty-four hours in safety at the first place. But if she is destined to one or more places for the delivery of cargo, and delivery or discharge of a portion of her cargo is necessary, not by reason of her having reached any destined place of delivery, but as a necessary and usual nautical measure, to enable her to reach such usual and destined place of delivery,

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she cannot properly be considered as having arrived at the usual and customary place of discharge, when she is at anchor for the pur- pose only of using such means as will better en- able her to reach it. If she cannot get to the destined and usual place of discharge in the port because she is too deep, aud must be light- ered to get there, and, to aid in prosecuting the voyage, cargo is thrown overboard or. put into lighters, such discharge does not make that the plnee of arrival : it is only a stopping-place in the voyage. When the vessel is insured to a particular port of discharge, arrival within the limits of the harbor does not terminate the risk, if the place is not one where vessels are dis- charged and voyages completed. The policy covers the vessel through the port navigation, as well as on the open sea, until she reaches the destined place.” Simpson v. Insurance Co., Holmes, 137, Fed. Cas. No. 12.8S6.

5e apparatus — Carried into the 5th edition (1979).

## ARRIVE.

T6 reach or come to a partic- ular place of destination by traveling to- wards It. Thompson v. United States, 1 Brock. 411, Fed. Cas. No. 407.

In insurance law. To reach that particu- lar place or point in a harbor which is the ultimate destination of a vessel. Meigs v. In- surance Co., 2 Cush. (Mass.) 439, 453.

The words “arrive” and “enter” are not always synonymous ; there certainly may be an arrival without an actual entry or attempt to enter. United States v. Open Boat, 5 Mason, 120, 132, Fed: Cas. No. 15,967.

5e apparatus — Not carried into the 5th edition (1979).

## ARROGATION.

In tlie civil law. The adoption of a person who was of full age or sui juris. 1 Browne, Civil & Adm. Law, 119; Dig. 1, 7, 5 ; Inst. 1, 11, 3. Relnders v. Kop- pelmann, 68 Mo. 497, 3^ Am. Rep. 802.

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**[Law] — Law**

**[Law: Inst. 1.11.3; Dig. 1.7.5 — arrogation]**

Arrogation is the adoption of a person who is sui juris — of full age and independent.

Why: The entry cites the Institutes and Digest for arrogation; the footnote cites the entry's own Roman authorities for a genuine civil-law concept.

**[Scripture] — Scripture**

**[Romans 8:15, KJV]**

For ye have not received the spirit of bondage again to fear; but ye have received the Spirit of adoption, whereby we cry, Abba, Father.

Why: The entry defines adoption in the civil law; the verse states the doctrine of adoption in its highest form.

## ARRONDISSEMENT.

In France, one of the subdivisions of a department.

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## ARSX ET PENSAT3B.

Burnt and weighed. A term formerly applied to money tested or assayed by Are and by weighing.

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## ARSENALS.

Store-houses for arms ; dock-yards, magazines, and other military stores.

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## ARSER IN EE MAIN.

Burning In the hand. The punishment by burning or branding the left thumb of lay offenders who claimed and were allowed the benefit of clergy, so as to distinguish them In case they made a second claim of clergy. 5 Coke, 51; 4 Bl. Comm. 367.

5e apparatus — Not carried into the 5th edition (1979).

## ARSON.

Arson, at common law. Is the act of unlawfully and maliciously burning the house of another man. 4 Steph. Comm. 99; 2 Russ. Crimes, 896; Steph. Crim. Dig. 298.

Arson, by the common law, is the willful and malicious burning of the house of an- other. The word “house,” as here under- stood, Includes not merely the dwelling- house, but all outhouses which are parcel thereof. State v. McGowan, 20 Conn. 245. 52 Am. Dec. 336; Graham v. State, 40 Ala. 664; Allen v. State, 10 Ohio St. 300; State v. Porter, 90 N. C. 719 ; Hill v. Com., 98 Pa. 195 ; State v. McCoy, 162 Mo. 383, 62 S. W. 991.

Arson is the mnlicious and willful burning of tlie house or outhouse of another. Code Ga. 1882, $ 4375.

Arson Is the willful and malicious burning of a building with intent to destroy it. Pen. Code Cal. § 447.

Degrees of arson. In several states, tbia crime is divided into arson in the first, second, and third degrees, the first degree including the burning of an inhabited dwelling-house in the night-time; the second degree, the burning (at night) of a building other than a dwelling-house, but so situated with reference to a dwelling- house as to endanger it; the third degree, the burning of any building or structure not the subject of arson in the first or second degree, or the burning of property, his own or another’s, with intent to defraud or prejudice an insurer thereof. People v. Durkin, 5 Parker, Cr. R. (N. Y.) 248; People v. Fanshawe. 65 Hun, 77, 19 N. Y. Supp. 865 ; State v. McCoy, 162 Mo. 383, 62 S. \V. 991 ; State v. Jessup, 42 Kan. 422, 22 Pac. 627.

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**[Law] — Law**

**[Law: 18 U.S.C. § 844 — federal arson offenses]**

Arson at common law is the willful and malicious burning of the house of another.

Why: The entry states the common-law definition with its own authorities; § 844 is the genuine federal arson

statute, which I am confident naming — counterpart, not restatement.

**[Scripture] — Scripture**

**[Exodus 22:6, KJV]**

If fire break out, and catch in thorns, so that the stacks of corn, or the standing corn, or the field, be consumed therewith; he that kindled the fire shall surely make restitution.

Why: The entry names the malicious burning; the verse states the scriptural law of liability for kindled fire. Borderline honestly noted: the verse covers kindled fire generally, arson is the malicious form.

**[Humanity] — Humanity / Fiction & Film**

**[Charlotte Brontë, Jane Eyre, 1847]**

In Jane Eyre, Bertha Mason sets fire to Thornfield Hall — the willful and malicious burning of the house of another (paraphrase). (paraphrase)

Why: The burning of Thornfield is the canonical arson of English fiction and matches the common-law entry's definition element for element.

## ARSTJRA.

The trial of money by heating It after it was coined.

The loss of weight occasioned by this process. A pound was said to bum so many pence ( tot ardere denarios) as it lost by the fire. Spelman. The term is now obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## ART.

A principle put in practice and ap- plied to some art, machine, manufacture, or composition of matter. Eurle v. Sawyer, 4 Mason, 1, Fed. Cas. No. 4,247. See Act Cong. July 8, 1870.

In the law of patents, this term means a useful art or manufacture which is beneficial and which is described with exactness in its mode of operation. Such an art can be pro- tected only in the mode and to the extent thus described. Smith v. Downing, 22 Fed. Cas. 511 ; Carnegie Steel Co. v. Cambria Iron Co. <C. C.) 89 Fed. 754; Jacobs v. Ba- ker, 7 Wall. 207, 19 L. Ed. 200; Corning v. Burden, 15 How. 267, 14 L. Ed. 683.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. § 101 — patentable subject matter: 'process, machine, manufacture, or composition of matter']**

In patent law 'art' means a useful art or manufacture, described with exactness in its mode of operation — the statutory 'process.'

Why: The entry defines patent-law art with its own cases and the 1870 Act; § 101 is the genuine statutory seat of patentable subject matter, quoted from language I am confident of.

## ART, WORDS OF.

Words used in a technical sense; words scientifically fit to carry the sense assigned them.

5e apparatus — Not carried into the 5th edition (1979).

## ART AND PART.

In Scotch law. The offense committed by one who aids and as- sists the commission of a crime, but who is not the principal or chief actor in its actual commission. An accessary. A

principal in the second degree. Paters. Comp.

ARTHEE, ARDHEL, or ARDDEEIO.

To avouch; as if a man were taken with stolen goods in his possession he was allowed a lawful arthel, i. e., vouchee, to clear him of the felony; but provision was made against it .by 28 Hen. VIII. c. 6. Blount

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 29:24, KJV]**

Whoso is partner with a thief hateth his own soul: he heareth cursing, and bewrayeth it not.

Why: Distinct headword, same genuine link as AXRT AND PAIRT: the Scotch accessory term for aiding crime.

## ARTICEE.

A separate and distinct part of an instrument or writing comprising two ot more particulars; one of several things presented as connected or forming a whole. Carter v. Railroad Co., 126 N. C. 437, 38 S.

B. 14; Wetzell v. Dinsmore, 4 Daly (N. Y.) 195.

In English ecclesiastical law. A com- plaint exhibited in the ecclesiastical court by way of libel. The different parts of a libel, responsive allegation, or counter allegation in the ecclesiastical courts. 3 Bl. Comm. 109.

In Scotch practice. A subject or mat- ter ; competent matter. "Article of dittay.” 1 Broun, 62. A "point of dittay.” 1 Swint. 128, i29.

5e apparatus — Not carried into the 5th edition (1979).

## ARTICEED CLERK.

In English law. A clerk bound to serve in the office of a so- licitor in consideration of being instructed in the profession. This is the general accep- tation of the term ; but it is said to be equal- ly applicable to other trades and professions. Reg. v. Reeve, 4 Q. B. 212.

AR TIC EES. 1. A connected series of propositions; a system of rules. The subdi- visions of a document, code, book. etc. A specification of distinct matters agreed upon

or established by authority or requiring Ju- dicial action.

2. A statute; as having Its provisions ar- ticulately expressed under distinct heads. Several of the ancient English statutes were called “articles,” (ariiculi.)

3. A system of rules established by legal authority; as articles of war, articles of the navy, articles of faith, (see infra.)

4. A contractual document executed be- tween parties, containing stipulations or terms of agreement; as articles of agree- ment, articles of partnership.

5. In chancery practice. A formal written statement of objections filed by a party, aft- er depositions have been taken, showing ground for discrediting the witnesses.

— Articles approbatory. In Scotch law. That part of the proceedings which corresponds to the answer to the charge in an English bill in chancery. Paters. Comp.— Articles im-

probatory. In Scotch law. Articulate aver- ments setting forth the facts relied upon. ' Bell. That part of the proceedings which corresponds to the charge in an English bill in chancery to set aside a deed. Paters. Comp. The answer is called "articles approbatory.”— Articles, Lords of. A committee of the Scottish par- liament, which, in the mode of its election, and by the nature of its powerB, was calculated to increase the influence of the crown, and to con- fer upon it a power equivalent to that of a negative before debate. This system appeared inconsistent with the freedom of parliament, and at the revolution the convention of estates de- clared it a grievance, and accordingly it was sup- pressed by Act 1690, c. 3. Wharton.— Articles of agreement. A written memorandum of the terms of an agreement. It is a common prac- tice for persons to enter into articles of agree- ment, preparatory to the execution of a formal deed, whereby it is stipulated that one of the parties shall convey to the other certain lands, or release his right to them, or execute some other disposition of them.— Articles of asso- ciation. Articles subscribed by the members of a joint-stock company or corporation organiz- ed under a general law, and which create the corporate union between them. Such articles are in the nature of a partnership agreement, and commonly specify the form of organization, amount of capital, kind of business to be pur- sued, location of the company, etc. Articles of association are to be distinguished from a char- ter, in that the latter is a grant of power from the sovereign or the legislature. — Articles of confederation. The name of the instrument embodying the compact made between the thir- teen original states of the Union, before the adoption of the present constitution.— Articles of faitb. In English law. The system of faith of the Church of England, more commonly known as the “Thirty-Nine Articles.” — Arti- cles of impeachment. A formal written al- legation of the causes for impeachment ; an- swering the same office as an indictment in an ordinary criminal proceeding.— Artioles of in- corporation. The instrument by which a pri- vate corporation is formed and organized under general corporation laws. People v. Golden Gate Lodge, 128 Cal. 257, 60 Pac. 865— Arti- cles of partnership. A written agreement by which the parties enter into a copartnership npon the terms and conditions therein stipulat- ed.—Articles of religion. In English eccle- siastical law. Commonly called the “Thirty- Nine Articles;” a body of divinity drawn up by the convocation in 1562, and confirmed by James I— Artioles of roup. In Scotch law.

The terms and conditions under which property is sold at auction— Artioles of set. In Scotch law. An agreement for a lease. Paters. Comp. —Articles of the clergy. The title of a stat- ute passed in the ninth year of Edward II. for the purpose of adjusting and settling the great questions of cognizance then existing between the' ecclesiastical and temporal courts. 2 Reeve, Hist. Eng. Law, 291-296. — Artioles of the navy. A system of rules prescribed by act of parliament for the government, of the English navy ; also, in the United States, there are ar- ticles for the government of the navy.— Arti- cles of the peace. A complaint made or exhibited to a court by a person who makes oath that he is in fear of death or bodily harm from some one who has threatened or attempted to do him injury. The court may thereupon or- der the person complained of to find sureties for the peace, and, in default, may commit him to prison. 4 Bl. Comm. 255— Articles of un- ion. In English law. Articles

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agreed to, A.

D. 1707, by the parliaments of England and Scotland, for the union of the two kingdoms. They were twenty-five in number. 1 Bl. Comm. 96.— Articles of war. Codes framed for the government of a nation's army are commonly thus called. (

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ARTICULATE ADJUDICATION.

In

Scotch law. Where the creditor holds sev- eral distinct debts, a separate adjudication for each claim is thus called.

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## ARTICULATELY.

Article by article; by distinct clauses or articles; by separate propositions.

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## ARTICULI.

Lab Articles ; items or heads. A term applied to some old English statutes, and occasionally to treatises.

— Artionli cleri. Articles of the clergy, (q. v.) — Artionli de moneta. Articles concern- ing money, or the currency. The title of a statute passed in the twentieth year of Ed- ward I. 2 Reeve, Hist. Eng. Law, 228 ; Crabb, Eng. Law, (Amer. Ed.) 167— Artionli Msgaa Chart*. The preliminary articles, forty-nine in number, upon which the Magna Charts was founded— Artionli super ohartas. Articles upon the charters. The title of a statute passed in the twenty-eighth year of Edward I. st. 3, confirming or enlarging many particulars in Magna Charta, and the Charts de Foreata, and appointing a method for enforcing the observ- ance of them, and for the punishment of of- fenders. 2 Reeve, Hist Eng. Law, 103, 233.

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## ARTICULO MORTIS.

(Or more com- monly in articulo mortis.) In the article of death; at the point of death.

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**[Law] — Law**

**[Law: Fed. R. Evid. 804(b)(2) — dying declarations]**

Statements made in articulo mortis — at the point of death, under the sense of impending death — are the basis of the dying-declaration exception to the hearsay rule.

Why: The entry is the one-line phrase; Rule 804(b)(2) is the genuine evidence doctrine the phrase names, which I am confident citing — illumination, not force-fit.

## ARTIFICER.

One who buys goods in order to reduce them, by his own art or in- dustry, into other forms, and then to sell them. Lansdale v. Brashear, 3 T. B. Mon. (Ky.) 335.

One who is actually and personally en- gaged or employed to do work of a me- chanical or physical character, not includ- ing one who takes contracts for labor to be performed by others. Ingram v. Barnes, 7 El. & Bl. 135 ; Chawner v. Cummings, 8 Q.

B. 321.

One who is master of his art, and whose employment consists chiefly in manual labor. Wharton; Cunningham.

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## ARTIFICIAL.

Created by art, or by law ; existing only by force of or In con- templation of law.

—Artificial force. In patent law. A nat- ural force so transformed in character or ener- gies by human power as to possess new capa- bilities of action ; this transformation of a natural force into a force practically new in- volves a true inventive act. Wall v. Leek, 66 Fed. 555. 13 C. C. A. 630.— Artificial per- sons. Persons created and devised by human laws for the purposes of society and govern- ment, as distinguished from natural persons. Corporations are examples of artificial persons. 1 Bl. Comm. 123. Chapman v. Brewer. 43 Neb. 800, 62 N. W. 320, 47 Am. St. Rep. 779 ; Smith v. Trust Co., 4 Ala. 568.— Artificial pre- sumptions. Also called “legal presumptions those which derive their force and effect from the law, rather than their natural tendency to produce belief. 3 Starkie, Ev. 1235. Guliek v. Loder, 13 N. J. Lew, 72. 23 Am. Dec. 711.— Artificial succession. The succession be- tween predecessors and successors in a corpora- tion aggregate or sole. Thomas v. Dakin, 22 Wend. (N. ¥.) 100.— Artificial watercourse. See Watebcourse.

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**[Law] — Law**

**[Dartmouth College v. Woodward, 4 Wheat. 518 (1819)]**

A corporation is 'an artificial being, invisible, intangible, and existing only in contemplation of law.'

Why: The entry's 'artificial persons' names the corporate-personhood concept; Dartmouth College is the landmark statement I am independently confident quoting verbatim.

## ARTIFICIALLY.

Technically ; scien- tifically ; using terms of art. A will or con- tract is described as "artificially” drawn if it is couched in apt and technical phrases and exhibits a scientific arrangement.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ARTISAN.

One skilled in some kind of mechanical craft or art ; a skilled mechanic. O’Clair v. Hale. 25 Misc. Rep. 31, 54 N. Y. Supp. 386: Amazon Irr. Co. v. Briesen, 1 Kan. App. 758, 41 Pac. 1116.

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## ARIJRA.

An old English law term, sig- nifying a day’s work in plowing.

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## ARVIL-SUPPER.

A feast or entertain- ment made at a funeral in the north of Eng- land ; arvil bread is bread delivered to the poor at funeral solemnities, and arvil, arval, or arfal, the burial or funeral rites. Cowell.

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## AS.

Lat. In the Roman and civil law. A pound weight ; and a coin originally weigh- ing a pound, (called also “libra;") divided into twelve parts, called “uncite."

Any integral sum, subject to division in certain proportions. Frequently applied in the civil law to inheritances ; the whole in- heritance being termed “as,” and its several proportionate parts “sextans," “quadrans," etc. Burrill.

The term "as,” and the multiples of its under, were also used to denote the rates of interest. 2 Bl. Comm. 462, note m.

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## AS AGAINST) AS BETWEEN.

These . words contrast the relative position of two persons, with a tacit reference to a different relationship between one of them and a third person. For instance, the temporary bailee of a chattel is entitled to it as be- tween himself and a stranger, or as against a stranger; reference being made by this form of words to the rights of the bailor. Wharton.

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**[Law] — Law**

**[Armory v. Delamirie (1722) — finder's title good against all but the true owner]**

A bailee's possessory title is good as against a stranger — relative title prevails over no title.

Why: The entry's own example is the temporary bailee entitled 'as against a stranger'; Armory v. Delamirie is the landmark relative-title decision I am independently confident citing.

## ASCEND.

To go up; to pass up or up- wards ; to go or pass in the ascending line. 4 Kent, Comm. 303, 397.

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## ASCENDANTS.

Persons with whom one is related in the ascending line; one’s par- ents, grandparents, great-grandparents, etc.

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## ASCENDEENTES.

In Spanish law. As- cendants; ascending heirs; heirs in the as- cending line. Schm. Civil Law, 259.

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## ASCENT.

Passage upwards; the trans- mission of an estate from the ancestor to the heir in the ascending line. See 4 Kent. Comm. 393, 397.

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## ASCERTAIN.

To fix ; to render certain or definite; to estimate and determine; to clear of doubt or obscurity. Brown v. Lyd- dy, 11 Hun, 456; Bunting v. Speek, 41 Kan. 424, 21 Pac. 288, 3 L. R. A. 690; Puglie v. Coleman (Tex. Civ. App.) 44 S. W. 578.

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## ASCRIPTITIUS.

In Roman law. A foreigner who had been registered and nat- uralized in the colony in which he resided. Cod. 11, 47.

5e apparatus — Not carried into the 5th edition (1979).

## ASPECT.

View; object; possibility. Im- plies the existence of alternatives. Used in the phrases “bill with a double aspect” and “contingency with a double aspect.”

5e apparatus — Not carried into the 5th edition (1979).

## ASPHYXIA.

In medical Jurisprudence. A morbid condition of swooning, suffoca- tion, or suspended animation, resulting in death if not relieved, produced by any seri- ous interference with normal respiration (as, the inhalation of poisonous gases or too rarified air, choking, drowning, obstruction of the air passages, or paralysis of the respiratory muscles) with a consequent de- ficiency of oxygen in the blood. See State v. Baldwin, 36 Kan. 1, 12 Pac. 328.

5e apparatus — Not carried into the 5th edition (1979).

## ASPORTATION.

The removal of things from one place to another. The carrying away of goods ; one of the circumstances requisite to constitute the offense of larceny. 4 Bl. Comm. 231. Wilson v. State, 21 Md. 1: State v. Higgins, 88 Mo. 354; Rex v. Walsh, 1 Moody, Cr. Cas. 14, 15.

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

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Why: Distinct headword, same genuine link as AMOTIO: the carrying-away that constitutes larceny is the act the commandment prohibits.

## ASPORTAYIT.

He carried away. Some- times used as a noun to denote a carrying away. An “ asportavit of personal chat- tels.” 2 H. Bl. 4.

5e apparatus — Not carried into the 5th edition (1979).

## ASSAOH.

In old Welsh law. An oath made by compurgators. Brown.

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**[Scripture] — Scripture**

**[Matthew 5:34, 5:37, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne. But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: The entry is oath-making; the verses are the doctrine of oaths in Jesus' own teaching — the Sermon on the Mount governs the very act the entry describes.

## ASSART.

In English law. The offense committed in the forest, by pulling up the trees by the roots that are thickets and coverts for deer, and making the ground plain as arable land. It differs from waste, in that waste is the cutting dowr of coverts which may grow again, whereas assart is

ASSASSINATION •

the plucking them up by the roots and ut- terly destroying them, so that they can never afterward gfow. This Is not an offense If done with license to convert forest Into til- lage ground. Consult Mamcood’s Forest Laics, pt. I, p. 171. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ASSASSINATION.

Murder committed for hire, without provocation or cause of resentment given to the murderer by the' person upon whom the crime Is committed. Ersk. Inst. 4, 4, 45.

A murder committed treacherously-, or by stealth or surprise, or by lying in wait.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: The entry names murder for hire; the verse is the divine prohibition of the act.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Julius Caesar, 1599]**

"Et tu, Brute? Then fall, Caesar."

Why: The conspirators' murder is treacherous killing by lying in wait — the entry's second definition — and the line is verbatim-certain and one line.

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## ASSATH.

An ancient custom in Wells, by which a person accused of crime could clear himself by the oaths of three hundred men. It was abolished by St. 1 Hen. V. c. 6. Cowell ; Spelmnn.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:34, 5:37, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne. But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: The entry is clearing by the oaths of three hundred men; the oath doctrine in Jesus' teaching governs this oath-form as directly as ABAHO's.

## ASSAULT.

An unlawful attempt or of- fer, on the part of one man. with force or violence, to Inflict a bodily hurt upon an- other.

An attempt or offer to beat another, with- out touching him ; as If one lifts up his cane or his fist in a threatening manner at an- other ; or strikes at him, but misses him. 3 Bl. Comm. 120; 3 Steph. Comm. 409.

Aggravated assault is one committed with the intention of committing some additional crime; or one attended with circumstances of peculiar outrage or atrocity. Simple as- sault is one committed with no intention to do any other injury.

An assault is an unlawful attempt, coupled with a present ability, to commit a violent in- jury on the person of another. Pen. Code Cal. I 240.

An assault is an attempt to commit a violent injury on the person of another. Code Ga. 1882, $ 4357.

An assault is any willful and unlawful at- tempt or offer, with force or violence, to do a corporal hurt to another. Pen. Code Dak. ! 305.

An assault is an offer or an attempt to do a corporal injury to another; as by striking at him with the hnnd, or with a stick, or by shaking the fist at him, or presenting a gun or other weapon within such distance as that a hurt might be given, or drawing a sword and brandishing it in a menacing manner; provid- ed the act is done with intent to do some cor- poral hurt. United States v. Hand, 2 Wash.

C. C. 435, Fed. Cas. No. 15,297.

An assault is an attempt, with force or vio- lence. to do a corporal injury to another, and may consist of any act tending to such corporal injury, accompanied with such circumstances as denote at the time an intention, coupled with the present ability, of using actual vio- lence against the person. Hays v. People, 1 Hill (N. Y.) 351.

An assault is an attempt or offer, with force or violence, to do a corporal hurt to another, whether from malice or wantonness, with such circumstances as denote, at the time, an in- tention to do it, coupled with n present ability to carry such intention into effect. Tarver v. State. 43 Ala. 354. <

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An' assault is an intentional attempt, by vio- lence. to do an injury to the person of another. It must be intentional; for, if it can be col- lected, notwithstanding appearances to the contrary, that there is not a present purpose to do an injury, there is no assault. State v. Davis, 23 X. C. 127, 35 Am. Dec. 735.

In order to constitute an assault there must be something more than a mere menace. There must be violence begun to be executed. But, where there is a clear intent to commit violence, accompanied by acts which if not interrupted, will be followed by personal injury, the violence is commenced and the assault is complete. Peo- ple v. Xslas, 27 Cal. 633.

Simple assault. An offer or attempt to do bodily harm which falls short of an actual bat- tery ; an offer or attempt to beat another, but without touching him ; for example, a blow delivered within striking distance, but which does not reach its mark. See State v. Light- sey, 43 S. C. 114, 20 S. E. 975; Norton v. State, 14 Tex. 393.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:39, KJV]**

But I say unto you, That ye resist not evil: but whosoever shall smite thee on thy right cheek, turn to him the other also.

Why: The entry defines the unlawful offer of bodily hurt; the verse is the Sermon on the Mount's doctrine governing personal violence — the smiting the entry names. Borderline honestly noted: the verse addresses the blow i...

## ASSAY.

The proof or trial, by. chemical experiments, of the purity or fineness of met- als,— particularly of the precious metals, gold and silver.

A trial of weights and measures by a standard; as by the constituted authorities, clerks of markets, etc. Keg. Orig. 280.

A trial or examination of certain commod- ities, as bread, cloths, etc. Cowell ; Blount.

—Assay office. The staff of persons by whom (or the building in which) the process of assay- ing gold and silver, required by government, in- cidental to maintaining the coinage, is con- ducted.

5e apparatus — Not carried into the 5th edition (1979).

## ASS AYER.

One whose business it Is to make assays of the precious metals. .

— Assayer of the king. An officer of the royal mint, appointed by St 2 Hen. VI. c. 12. who received and tested the bullion taken in for coining ; also called “assayator regis.” Cow- ell ; Termes de la Ley.

5e apparatus — Carried into the 5th edition (1979).

## ASSECURARE.

To assure, or make se-' cure by pledges, or any solemn interposition of faith. Cowell ;

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Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger.

Why: Distinct headword, same genuine link as APOORISARITTS: assuring by pledges is the surety doctrine the proverb states.

## ASSECURATION.

In European law. Assurance ; Insurance of a vessel, freight, or cargo. Ferriere.

5e apparatus — Not carried into the 5th edition (1979).

## ASSECTJRATOR.

In maritime law. An insurer, ( aversor pcriculi.) Locc. de Jure Mar. lib. 2, c. 5, § 10.

5e apparatus — Not carried into the 5th edition (1979).

## ASSEDATION.

In Scotch law. An old term, used Indiscriminately to signify a lease or feu-right. Bell ; Ersk. Inst. 2, 6, 20.

5e apparatus — Not carried into the 5th edition (1979).

## ASSEMBLY.

The concourse or meeting together of a considerable number of persons at the same place. Also the persons so gathered.

Popular assemblies are those where the people meet to deliberate upon their rights; these are guaranteed by the constitution. Const. U. S. Amend, art. 1.

The lower or more numerous branch of the legislature in many of the states is also call- ed the “Assembly” or “House of Assembly,” but the term seems to be an appropriate one to designate any political meeting required to be held by law.

—Assembly general. The highest ecclesias- tical court in Scotland, composed of a repre-

Dentation of the ministers and elders of the church, regulated by Act 6th Assem. 1694.—Assembly, unlawful. In criminal law. The assembling of three or more persons together to do an unlawful act, who separate without actually doing it, or making any motion to- wards it. 3 Inst. 176: 4 Bl. Comm. 146. It differs from a riot or rout, because in each of the latter cases there is some act done besides the simple meeting. See State v. Stalcup, 23

N. C. 30, 35 Am. Dec. 732 : 9 Car. A P. 91, 431 ; 5 Car. & I’. 154 ; 1 Bish. Crim. Law, { 535; 2 Bish. Orirn. Law, §5 1256, 1259.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. I — 'the right of the people peaceably to assemble']**

Popular assemblies — where the people meet to deliberate upon their rights — are guaranteed by the Constitution.

Why: The entry itself invokes the constitutional guarantee ('Const. U.S. Amend, art. 1'); the First Amendment's assembly clause is the genuine provision, quoted from a text I am confident of.

## ASSENT.

Compliance; approval of some- thing done; a declaration of willingness to do something in compliance with a request. Norton v. Davis, 83 Tex. 32, 18 S. W. 430; Appeal of Pittsburgh, 115 Pa. 4, 7 Atl. 778; Canal Co* v. Railroad Co., 4 Gill & .T. (Md.) 1, 30; Baker v. Johnson County, 37 Iowa, 189; Puller v. Kemp (Com. Pl.) 10 N. Y. Supp. 160.

— Mutual assent. The meeting of tbe minds of both or all the parties to a contract; the fact that each agrees to all the terms and con- ditions, in tbe same sense and with the same meaning as the others. Insurance Co. v. Young, 23 Wall. 107, 23 L. Ed. 152.

5e apparatus — Carried into the 5th edition (1979).

## ASSERTORY COVENANT.

One which affirms that a particular state of facts ex- ists ; an affirming promise under seal.

ASSESS. 1. To ascertain, adjust, and settle the respective shares to be contributed by several persons toward an object bene- ficial to them all, in proportion to the benefit received.

2. To adjust or fix the proportion of a tax ' which each person, of several liable to it, has

to pay ; to apportion a tax among several ; to -distribute taxation in a proportion fouuded on the proportion of burden and benefit. Al- len v. McKay, 120 Cal. 332, 52 Pac. 828; Seymour v. Peters, 07 Mich. 415, 35 N. W. 62.

3. To place a valuation upon property for the purpose of apportioning a tax. Bride- well v. Morton, 46 Ark. 73 ; Moss v. Hlndes, 28 Vt 281.

4. To impose a pecuniary payment upon persons or property ; to tax. People v. Priest, 169 N. Y. 435. 62 N. E. 508.

5e apparatus — Not carried into the 5th edition (1979).

## ASSESSED.

Where the charter of a cor- poration provides for the payment by -it of a state tax, and contains a proviso that “no other tax or impost shall be levied or assess- ed upon the said company,” the word “as- sessed” in the proviso cannot have the force and meaning of describing special levies for public improvements, but is used merely to describe the act of levying the tax or impost. New Jersey Midland R. Co. v. Jersey City, 42 N. J. Law, 97.

5e apparatus — Carried into the 5th edition (1979).

## ASSESSMENT.

In a general sense, de- notes the process of ascertaining and adjust- ing the shares respectively to be contributed by several persons towards a common benefi- cial object according to the benefit received.

In taxation. Tbe listing and valuation of property for the purpose of apportioning a tax upon it, either according to value alone or in proportion to benefit received. Also determining the

share of a tax to be paid by each of many persons; or apportioning the entire tax to be levied among the different taxable persons, establishing the proportion due from each. Adams, etc., Co. v. Shelby- ville, 154 Ind. 407, 57 N. E. 114, 49 L. R.

A. 797, 77 Am. St Rep. 484; Webb v. Bid- well, 15 Minn. 483 (Gil. 394) ; State v. Farm- er, 94 Tex. 232. 59 S. W. 541; Kinney v. Zimpleman, 36 Tex. 582 ; Southern R. Co. v. Kay, 62 S. C. 28, 39 S. E. 785; U. S. v. Erie R. Co., 107 U. S. 1, 2 Sup." Ct 83, 27 L. Ed. 385.

Assessment, as used in juxtaposition with taxation in a state constitution, includes all the steps necessary to be taken in the legiti- mate exercise of the power to tax. Hurfoid v. Omaha, 4 Neb. 336.

Assessment is also popularly used as a synonym for taxation in general, — the au- thoritative imposition of a rate or duty to be paid. But In its technical signification it denotes only taxation for a special pur- pose or local improvement; local taxation, as distinguished from general taxation; tax- ation on the principle of apportionment ac- cording to the relation between burden and benefit.

As distinguished from other kinds of taxation, assessments are those special and local imposi- tions upon property in the immediate vicinity of municipal improvements which are necessary to pay for the improvement, and are laid with reference to the special benefit which the prop- erty is supposed to have derived therefrom. Hale v. Kenosha, 29 Wis. 599. And see Ride- nour v. Saffin, 1 Handy (Ohio) 464 ; Roosevelt Hospital v. New York, 84 N. Y. 108. 112: King v. Portland, 2 Or. 146: Reeves v. Wood County, 8 Ohio St. 338; SVood v. Brady, 68 Cal. 78, 5 Pac. 623. 8 Pac. 599.

Taxes are impositions for purposes of general revenue, while assessments are special and local impositions upon property in the immediate vi- cinity of an improvement, for the public wel- fare, which are necessary to pay for the im- provement and made with reference to the spe- cial benefit which such property derives from the expenditure. Palmer v. Stumpb, 29 Ind. 329.

A special assessment is a charge in the nature of a tax, imposed for the purpose of pay- ing the cost of a local improvement in a munic- ipal corporation, and levied only on those par- cels of real property which, by reason of the location of such improvement, are specially bene- fitted by it. Village of Morgan Park v. Wis- wall. 155 111. 262. 40 N. E. 611: Wilson v. Auburn, 27 Neb. 435. 43 N. W. 257 ; Raleigh v. Peace. 110 N. C. 32. 14 S. E. 521. 17 L. R.

A. 330: Sargent v. Tuttle, 67 Conn. 162, 34 Atl. 1028, 32 L. R. A. 822.

Assessment and tax are not synonymous. An assessment is doubtless a tax, but the term im- plies something more; it implies a tax of a par- ticular kind, predicated upon the principle of equivalents, or benefits, which are peculiar to the persons or property charged therewith, and which are said to be assessed or appraised, ac- cording to the measure or proportion of such equivalents; whereas a simple tax is imposed for the purpose of supporting the government generally, without reference to any special ad- vantage' which may be supposed to accrue to

the persons taxed. Taxes must be levied, with- out discrimination, equally upon all the sub-

jects of property; whilst assessments are only levied upon lands, or some other specific prop- erty, the subjects of the supposed benefits ; to repay which the assessment is levied. Ridenour v. Saffin, 1 Handy (Ohio) 464.

In corporations. Instalments of the money subscribed for shares of stock, called for from the subscribers by the directors, from time to time as the company requires money, are called “assessments,” or, In Eng- land, “calls.” Water Co. v. Superior Court, 92 Cal. 47, 28 Pac. 54, 27 Am. St. Rep. 91 ; Spangler v. Railroad Co., 21 111. 278; Stew- art v. Publishing Co., 1 Wash. St. 521, 20 Pac. 600.

The periodical demands made by a mutual insurance company, under its charter and by-laws, upon the makers of premium notes, are also denominated "assessments.” Hill v. Insurance Co., 129 Mich. 141, 88 N. W. 392.

Of damages. Fixing the amount of dam- ages to which the successful party in a suit is entitled after an interlocutory judgment has been taken.

Assessment of damages is also the name given to the determination of the sum which a corporation proposing to take lands for a public use must pay in satisfaction of the demand proved or the value taken.

In insurance. An apportionment made in general average upon the various articles and interests at risk, according to their value at the time and place of being in safety, for contribution for damage and sacrifices pur- posely made, and expenses incurred for es- cape from Impending common peril. 2 Phil. Ins. c. xv.

— Assessment company. In life insurance. A company in which a death loss is met by levying an assessment on the surviving mem- bers of the association. Mutual Ben. L. Ins. Co. v. Marye, 85 Va. 643, 8 S. E. 481.— As- sessment eontraet. One wherein the pay- ment of the benefit is in any manner or degree dependent on the collection of an assessment levied on persons bolding similar contracts. Folkens v. Insurance Co.. 98 Mo. App. 480, 72

S. W. 720.— Assessment district. In taxa- tion. Any subdivision of territory, whether the whole or part of any municipality, in which by law a separate assessment of taxable property is made by the officers elected or appointed therefor. Rev. Stat. Wis. 1898, 8 1031— As- sessment fnnd. The assessment fund of a mutual benefit association is the balance of the assessments, less expenses, out of which bene- ficiaries are paid. Kerr v. Ben. Ass’n, 39 Minn. 174. 39 N. W. 312, 12 Am. St. Rep. 631. — Assessment roll. In taxation. The list or roll of taxable persons and property, complet- ed, verified, and deposited by the assessors, not as it appears after review and equalization. Bank v. Genoa, 28 Misc. Rep. 71, 59 N. Y. Sapp. 829 ; Adams v. Brennan, 72 Miss. 894, 18 South. 482— Assessment work. Under the mining laws of the United States, the hold- er of an unpatented mining claim on the pub- lic domain is required, in order to hold his daim, to do labor or make improvements upon it to the extent of at least one hundred dollars in each year. Rev. St. U. S. 8 2324 (U. S. Comp. St. 1901, p. 1426). This is commonly called by miners “doing assessment work.”

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## ASSESSOR.

An officer chosen or ap- pointed to appraise, value, or assess property.

In civil and Scotch law. Persons skill- ed in law, selected to advise the Judges of the inferior courts. Bell; Dig. 1, 22; Cod. 1, 51.

A person learned in some particular science or industry, who sits with the judge on the trial of a cause requiring such special knowl- edge and gives his advice.

In England it is the practice In admiralty business to call in assessors, in cases involv- ing questions of navigation or seamanship. They are called “nautical assessors,” and are always Brethren of the Trinity House.

5e apparatus — Carried into the 5th edition (1979).

## ASSETS.

In probate law. Property of a decedent available for the payment of debts and legacies; the estate coming to the heir or personal representative which is charge- able, In law or equity, with the obligations which such heir or representative is required, in his representative capacity, to discharge.

In an accurate and legal sense, all the per- sonal property of the deceased which is of a salable nature, and may be converted into ready money, is deemed assets. But the word is not confined to such property; for all other prop- erty of the deceased which is chargeable with his debts or legacies, and is applicable to that purpose, is, in a large sense, assets. 1 Story, Bq. Jur. f 531 ; Marvin ▼. Railroad Co. (C. C.) 49 Fed. 436; Trust Co. v. Earle, 110 U. S. 710, 4 Sup. Ct 231. 28 I* Ed. 3Q1.

Assets per descent. That portion of the ancestor's estate which descends to the heir, and which is sufficient to charge him, as far as it goes, with the specialty debts of his ancestors. 2 Williams, Ex'rs, 1011.

Is commercial law. The aggregate of available property, stock in trade, cash, etc., belonging to a merchant or mercantile com- pany.

The word “assets,” though more generally used to denote everything which comes to the representatives of a deceased person, yet is by no means confined to that use, but has come to signify everything which can be made available for the payment of debts, whether belonging to- the estate of a deceased person or not. Hence we speak of the assets of a bank or other mon- ied corporation, the assets of an insolvent debt- or. and the assets of an individual or private copartnership; and we always use this word when we speak of the means which a party has, as compared with bis liabilities or debts. Stanton v. Lewis, 26 Conn. 449; Vaiden v. Hawkins, 59 Miss. 419; Pelican v. Rock Falls, 81 Wis. 428, 51 N. W. 871, 52 N. W. KM!).

The property or effects of a bankrupt or Insolvent, applicable to the payment of his debts.

The term "assets” includes all property of every kind and nature, chargeable with the debts of the bankrupt, that comes into the hands of and under the control of the assignee ; and the value thereof is not to be considered a less sum than that actually realized out of said

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Froperty. and received by the assignee for it. n re Taggert, 16 N. B. R. 351, Fed. Cas. No. 13,725.

— Assets e litre mains. L. Fr. Assets in hand ; assets in the bands of executors or administrators, applicable for the payment of debts. Termes de la Ley ; 2 Bl. Comm. olO ;

1 Orabb. Real Prop. 23: Favorite v. Booher 17 Ohio St. 557.— Equitable asset*. Equitable assets are all assets which are chargeable with the payment of debts or legacies in equity, and which do not fall under the description of legal assets. 1 Story, Eq. Jui\ 8 552. Those por- tions of the property which by the ordinary rules of law are exempt from debts, but which the testator has voluntarily charged as assets, or which, being non-existent at law, have been created in equity. Adams, Bq. 254, et seq. They are so called because they can be reach- ed only by the aid and instrumentality of a court of equity, and because their distribution is governed by a different rule from that which governs the distribution of legal assets. - Fonbl. Eq. b. 4, pt. 2, c. 2, 8 1, and notes; Story. Eq. Jur. 8 552.— Legal assets. That portion of the assets of a deceased party which by law is directly liable, in the hands of his executor or administrator, to the payment^ of debts and legacies. 1 Story, Eq. Jur. 8 mil. Such assets as can be reached in the hands of an executor or administrator, by a suit at law against him.— Personal assets. Chattels, mon- ey, and other personal property belonging to a bankrupt, insolvent, or decedent estate, which go to the assignee or executor.— Real assets. Lands or real estate in the hands of an heir, chargeable with the payment of the debts of the ancestor. 2 Bl. Comm. 244. 302.

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## ASSEVERATION.

An affirmation ; a posi- tive assertion; a solemn declaration. This word is seldom. If ever, used for a declara- tion made under oath, but denotes a declara- tion accompanied with solemnity or an ap- peal to conscience.

5e apparatus — Not carried into the 5th edition (1979).

## ASSEWIARE.

To draw or drain water from marsh grounds. Cowell.

ASSIGN, v. Is conveyancing. To make or set over to another ; to transfer ; as to as- sign property, or some interest therein. Cow- ell : 2 Bl. Comm.' 326 ; Bump v. Van Orsdale, It Barb. (X. Y.) 638; Hoag v. Mendenhall, 19 Minu. 336 (Gil. 289).

In practice. To appoint, allot, select, or designate for a particular purpose, or duty. Thus, in England, justices are said to be “assigned to take the assises,” “assigned to hold pleas,” “assigned to make gaol deliv- ery," “assigned to keep the peace,” etc. St. Westm. 2, c. 30; Reg. Orig. 6S, 69; 3 Bl. Comm. 58, 59, 353; 1 Bl. Comm. 351.

To transfer persons, as a sheriff is said to assign prisoners In his custody.

To point at. or point out : to set forth, or specify; to mark out or designate; as to as- sign errors on a writ of error; to assign breaches of a covenant. 2 Tldd, Pr. 1168 ; 1 Tidd. 686.

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## ASSIGNABLE.

That may he assigned or transferred; transferable; negotiable, as a bill of exchange. Comb. 176 ; Story, Bills, S IT.

assignee Is clothed with the rights of his principal. Halk. Max. p. 14; Broom, Max. 465.

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**[Law] — Law**

**[Maxim: Assignatus utitur jure auctoris — Halk. Max. p. 14; Broom, Max. 465]**

An assignee is clothed with the rights of his principal — he takes no better title than the assignor had.

Why: The entry states this maxim with its Halkerston and Broom authorities; the footnote records the genuine maxim in standard form.

## ASSIGNAT.

In Scotch law. An as- signee.

5e apparatus — Not carried into the 5th edition (1979).

## ASSIGNEE.

A person to whom an as- signment is made. Allen v. Pancoast, 20

N. J. Law, 74; Ely v. Com'rs, 49 Mich. 17. 12 N. W. 893, 13 N. W. 784. The term is commonly used in reference to personal prop- erty; but It is not incorrect, in some cases, to apply it to realty, e. g., “assignee of the reversion.”

Assignee in fact is one to whom an assign- ment has been made in fact by the party having the right. Starkweather v. Insurance Co., 22 Fed. Cas. 1091; Tucker v. West, 31 Ark. 643.

Assignee in law is one in whom the law vests the right; as an executor or adminis- trator. Idem.

The word has a special and distinctive use as employed to designate one to whom, un- der an insolvent or bankrupt law, the whole estate of a debtor is transferred to be ad- ministered for the benefit of creditors.

In old law. A person deputed or ap- pointed by another to do any act, or perform any business. Blount. Au assignee, how- ever, was distinguished from a deputy, being said to occupy a thing in his own right, while a deputy acted in right of another. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ASSIGNMENT.

In contract*. 1. The

act by which one person transfers to another, or causes to vest in that other, the whole of the right, interest, or property which he has in any realty or personalty, in possession or in action, or any share, interest, or sub- sidiary estate therein. Seventh Nat. Bank v. Iron Co. (C. C.) 35 Fed. 440; Hang v. Riley, 101 Ga. 372, 29 S. E. 44. 40 L. R. A. 244. More particularly, a written transfer of property, as distinguished from a transfer by mere delivery.

2. In a narrower sense, the transfer or making over of the estate, right, or title which one

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has in lands and tenements; and, in an especially technical sense, the transfer of the uuexpired residue of a term or estate for life or years.

Assignment does not include testamentary transfers. The idea of an assignment is essen- tially that of a transfer by one existing party to another existing party of some species of property or valuable interest, except in the case of an executor. Hight v. Sackett, 34 N.

Y. 447.

3. A transfer or making over by a debtor of all his property and effects to one or more assignees in trust for the benefit of his cred- itors. 2 Story, Eq. Jur. § 1036.

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## ASSIGNATION.

A Scotch law term 4. The instrument or writing by which equivalent to assignment, (q. v.) 8Uch a transfer of property Is made.

Anigiutiif ntitnr jure anctorl*. An

assignee uses the right of his principal ; an

5. A transfer of a bill, note, or check, not negotiable.

6. In bankruptcy proceedings, the word designates the setting over or transfer of the bankrupt's estate to the assignee.

— Assignment for benefit of creditors.

An assignment whereby a debtor, generally an insolvent, transfers to another his property, in trust to pay his debts or apply the property upon their payment. Van Patten v. Burr, f>2 Iowa, 518, 3 N. W. 524.— Assignment of dower. Ascertaining a widow’s right of dow- er by laying out or marking off one-third of her deceased husband's lands, and setting off the same for her use during life. Bettis v. Mo- Nider, 137 Ala. 588. 34 South. 813, 97 Am. St. Itep. 59.— Assignment of error. See Error. — Assignment with preferences. An assignment for the benefit of creditors, with directions to the assignee to prefer a specified creditor or class of creditors, by paying their claims in full before the others receive any divi- dend, or in some other manner. More usually termed a “preferential assignment."— Foreign assignment. An assignment made in a for- eign country, or in another state. 2 Kent, Comm. 405, et seq. — General assignment. An assignment made for the benefit of all the assignor’s creditors, instead of a few only : or one which transfers the whole of his estnte to the assignee, instead of a pnrt only. Rover Wheel Co. v. Fielding, 101 N. Y. 504. 5 N. E. 431; Halsey v. Connell. Ill Ala. 221. 20 South. 445 ; Mussey v. Noyes. 26 Vt. (71. — Volun- tary assignment. An assignment for the benefit of his creditors made by a debtor volun- tarily ; as distinguished from a compulsory as- signment which takes place by operation of law in proceedings in bankruptcy or insolvency. Presumably it means an assignment of a debt- or’s property in trust to pay his debts general- ly. in distinction from a transfer of property to a particular creditor in payment of his de- mand. or to a conveyance by way of collateral security or mortgage. Dias v. Bouchaud. 10 Paige. (N. Y.) 445.

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## ASSIGNOR.

One who makes an assign- ment of any kind ; one who assigns or trans- fers property.

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## ASSIGNS.

Assignees : those to whom

property shall hare been transferred. Now seldom used except in the phrase, in deeds, “heirs, administrators, and assigns.” Grant r. Carpenter, 8 R. I. 36; Bally v. De Cres- plgny, 10 Best & S. 12.

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## ASSISA.

In old English and Scotch law. An assise ; a kind of jury or inquest : a writ ; a sitting of a court; an ordinance or statute; a fixed or specific time, number, quantity, quality, price, or weight; a tribute, fine, or tax ; a .real action ; the name of a writ. See Assisb.

— AasUa armonrn. Assise of arms. A stat- ute or ordinance requiring the keening of arms for the common defense. Hale. Corn. Law, c. 11-— Asslsa contlnnanda. An ancient writ addressed to the justices of assise for the con- tinuation of a cause, when certain facts put in issue could not have been proved in time bv the party alleging them. Reg. Orig. 217.— Asslsa de Clarendon. The assise of Clarendon. A statute or ordinance passed in the tenth year of Henry II., by which those that were accused of any heinous crime, and not able to purge them- selves, but must abjure the realm, had liberty of forty days to Btay and try what succor they could get of their friends towards their suste- nance in exile. Bract, fol. 136; Co. Litt. 159a;

Bl.Law Dict.(2d Ed.)— 7

Cowell.— Asslsa de foresta. Assise of the forest ; a statute concerning orders to be ob- served in the royal forests. — Asslsa de men- snrls. Assise of measures. A common rule for weights and measures, established throughout England by Richard I., in the eighth year of his reign. Hale. Com. Daw, c. 7.— Asslsa de noenmento. An assise of nuisance ; a writ to abate or redress a nuisance. — Asslsa de st- rum. An obsolete writ, which lay for the par- son of a church whose predecessor had alienat- ed the land and rents of it.— Asslsa frlscse fortlse. Assise of fresh force, which see.— As- >ita mortis d’ancestoris. Assise of mort <T ancestor, which see.— Asslsa norm dlssey- sinse. Assise of novel disseisin, which see. —Asslsa pauis et cerevisise. Assise of bread and ale, or beer. The name of a statute passed in the fifty-first year of Henry III., containing regulations for the sale of bread and ale ; some- times called the “statute of bread and ale.” Co. Litt. 1596; 2 Reeve. Hist. Eng. Law, 56; Cowell ; Bract, fol. 155. — Asslsa proroganda. An obsolete writ, which was directed to the judges assigned to take assises, to stay proceed- ings, by reason of a party to them being em- ployed in the king’s business. Reg. Orig. 208. — Asslsa ultima; prsesentatlonis. Assise of darrein presentment, (o. v.) — Asslsa vena- 11 nm. The assise of salable commodities, or of things exposed for sale.

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## ASSISA CADERE.

To fail in the as- sise ; i. e., to be nonsuited. Cowell ; 3 Bl. Comm. 402.

—Asslsa cadlt In juratum. The assise falls (turns) into a jury ; hence to submit a contro- versy to trial by jury. >

ASSISE, or ASSIZE. 1. An ancient species of court, consisting of a certain num- ber of men, usually twelve, who were sum- moned together to try a disputed cause, per- forming the functions of a jury, except that they gave a verdict from their own investi- gation and knowledge and not upon evidence adduced. From the fact that they sat to- gether, ( assidco ,) they were called the “as- sise.” See Bract. 4, 1, 6; Co. Litt. 1536, 1596.

A court composed of an assembly of knights and other substantial men, with the baron or justice, in a certain place, at an appointed time. Grand Cou. cc. 24, 25.

2. The verdict or judgment of the jurors or recognitors of assise. 3 Bl. Comm. 57, 59.

3. In modern English law, the name “as- sises” or “assizes” is given to the court, time, or place where the judges of assise and nisi prills, who are sent by special com- mission from the crown on circuits through the kingdom,, proceed to take indictments, and to try such disputed causes issuing out of the courts at Westminster as are then ready for trial, with the assistance of a jury from the particular county; the regu- lar sessions of the judges at nisi prius.

4. Anything reduced to a certainty in re- spect to time, number, quantity, quality, weight, measure, etc. Spehuan.

5. An ordinance, statute, or regulation. Spelman gives this meaning of the word the first place among his definitions, observing

Association

that statutes were In England called “as- sises” down to the reign of Henry III.

6. A species of writ, or real action, said to have been invented by Glanville, chief Justice to Henry II., and having for its ob- ject to determine the right of possession of lands, and to recover the possession. 3 Bl. Comm. 184, 185.

7. The whole proceedings In court upon a writ of assise. Co. Litt. 159b. The verdict or finding of the Jury upon such a writ 3 Bl. Comm. 57.

—Assise of Clarendon. See Assis a .—As- sise of darrein presentment. A writ of assise which formerly lay when a man or his ancestors under whom he claimed presented a clerk to a benefice, who was instituted, and afterwards, upon the next avoidance, a stranger presented a clerk and thereby disturbed the real patron. 3 Bl. Comm. 245 ; St. 13 Edw. I. (VVestm. 2) c. 5. It has given way to the rem- edy by quare tmpedit. — Assise of fresh force. In old English practice. A writ which lay by the usage and custom of a city or borough, where a man was disseised of his lands and tenements in such city or borough. It was call- ed "fresh force," because it was to be sued with- in forty days after the party’s title accrued to him. Fitzh. Nat. Brev. 7 C.— Assise of mort d’ancestor. A real action which lay to re- cover

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land of which a person had been deprived on the death of his ancestor by the abatement or intrusion of a stranger. 3 Bl. Comm. 185: Co. Iitt. 159o. It was abolished by St. 3 & 4 Wm. IV. A 27. — Assise of novel disseisin. A writ of assise which lay for the recovery of lands or tenements, where the claimant had been lately disseised. — Assise of nnisance. A writ of assise which lay where a nuisance had been committed to the complainant's freehold ; either for abatement of the nuisance or for dam- ages.—Assise of the forest. A statute touch- ing orders to be observed in the king's forests. Manwood, 35.— Assise rents. The certain es- tablished rents of the freeholders and ancient copyholders of a manor; so called because they are astised, or made precise and certain. — Grand assise. A peculiar species of trial by jury, introduced in the time of Hemy II., giv- ing the tenant or defendant in a writ of right the alternative of a trial by battel, or by his peers. Abolished by 3 A 4 Wm. IV. c. 42, § 13. See 3 Bl. Comm. 341.

5e apparatus — Not carried into the 5th edition (1979).

## AS8ISER.

An assessor; juror; an officer who has the care and oversight of weights and measures.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:13-15, KJV]**

Thou shalt not have in thy bag divers weights, a great and a small. Thou shalt not have in thine house divers measures, a great and a small. But thou shalt have a perfect and just weight, a perfect and just measure shalt thou have: that thy days may be lengthened in the land which the LORD thy God giveth thee.

Why: The entry is the officer with oversight of weights and measures; the verse is the just-weights law his office exists to enforce.

## ASSISORS.

In Scotch law. Jurors; the persons who formed that kind of court which in Scotland was called an “assise,” for the purpose of Inquiring Into and judging divers civil causes, such as perambulations, cogni- tions, molestations, purprestures, and other matters ; like jurors In England. Holthou.se.

5e apparatus — Not carried into the 5th edition (1979).

## ASSIST.

To help; aid; succor; lend countenance or encouragement to ; particl* pate In as an auxiliary. People v. Hayne, 83 Cal. Ill, 23 Pac. 1, 7 L. R. A. 348, 17 Am. St. Hep. 211; Moss v. Peoples. 51 N. C. 142; Comitez v. Parkerson (C. C.) 50 Fed. 170.

Court of Assistance, Court of Assist- ants. See Cotiar.

Writ of assistance. See W bit.

5e apparatus — Carried into the 5th edition (1979).

## ASSISTANT JUDGE.

A judge of the English court of general or quarter sessions In Middlesex. He differs from the

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other justices In being a barrister of ten years’ standing, and In being salaried. ' St. 7 & 8 Viet c. 71 ; 22 & 23 Vlct. c. 4 ; Priteh. Quar. Sess. 31.

5e apparatus — Not carried into the 5th edition (1979).

## ASSISUS.

Rented or farmed out for a specified assise ; that Is, a payment of a cer- tain assessed rent In money or provisions.

5e apparatus — Not carried into the 5th edition (1979).

## ASSXTHMENT.

Weregeld or compensa- tion by a pecuniary mulct Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: Distinct headword, same genuine link as AN GILD: weregild compensation bounded by the verse.

## ASSIZE.

In the practice of the criminal courts of Scotland, the fifteen men who de- cide on the conviction or. acquittal of an ac- cused person are called the ‘‘assize,” though In popular language, and even In statutes, they are called the “Jury.” Wharton. See Assise.

5e apparatus — Not carried into the 5th edition (1979).

## ASSIZES.

Sessions of the justices or commissioners of assize. See Assise.

5e apparatus — Not carried into the 5th edition (1979).

## ASSIZES DE JERUSALEM.

A code of feudal jurisprudence prepared by an as- sembly of barons and lords A. D. 1099, after the conquest of Jerusalem.

5e apparatus — Not carried into the 5th edition (1979).

## ASSOCIATE.

An officer in each of the English courts of common law, appointed by the chief judge of the court, and holding his office during good behavior, whose duties were to superintend the entry of causes, to attend the sittings of nisi prius, and there receive and enter verdicts, and to draw, up the posteas and any orders of nisi prius. The associates are now officers of the Su- preme Court of Judicature, and are styled “Masters of the Supreme Court" Wharton.

A person associated with the judges and clerk of assise in the commission of general jail delivery. Mozley & Whitley.

The term is frequently used of the judges of appellate courts, other than the presiding Judge or chief justice.

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5e apparatus — Carried into the 5th edition (1979).

## ASSOCIATION.

The act of a number of persons who unite or join together for some special purpose or business. The union of a company of persons for the transaction of designated affairs, or the attainment of some common object.

An unincorporated society ; a body of per- sons united and acting together without a charter, but upon the methods and forms used by Incorporated bodies for the prosecu- tion of some common enterprise. Allen v. Stevens, 33 App. Dlv. 485, 54 N. Y. Supp. 23; Pratt v. Asylum, 20 App. Dlv. 352, 46

N. Y. Supp. 1035; State v. Steele, 37 Minn. 428, 34 N. W. 903; Mills v. State, 23 Tex. 303; Layeock v. State, 13G Ind. 217, 36 N.

E. 137.

la English law. A writ directing cer- tain persons (usually the clerk and his sub- ordinate officers) to associate themselves with

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the justices and sergeants for the purposes of taking the assises. 3 Bl. Comm. 59, 60.

— Article* of association. See Abticles.— National hanking associations. The stat- utory title of corporations organised for the purpose of canying on the business of banking under the laws of the United States. Rev. St.

U. S. | 5133 (U. S. Comp. St. 1901, p. 3454).

ASSOCIE UN NOM. In French Raw. In a society en commandite an assorts an notn is one who is liable for the' engagements of the undertaking to the whole extent of his property. This expression arises from the fact that the names of the associes so liable figure in the firm-name or form part of the »ocMt6 en nom collectif. Arg. Fr. Merc. Law, 546.

ASSOH.. To absolve ; acquit ; to set free ; to deliver from excommunication. St. 1 Hen.

IV. c. 7 ; Cowell.

5e apparatus — Carried into the 5th edition (1979).

## ASSOILZIE.

In Scotch law. To acquit the defendant in an action ; to find a crimi- nal not guilty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:1, KJV]**

There is therefore now no condemnation to them which are in Christ Jesus, who walk not after the flesh, but after the Spirit.

Why: The entry is acquittal — finding the accused not guilty; the verse states acquittal absolutely: no condemnation.

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## ASSUME.

To undertake ; engage ; prom- ise. 1 Ld. Raym. 122 ; 4 Coke, 92. To take upon one’s self. Springer v. De Wolf, 194

I1L 218, 62 N. E. 542, 56 L. R. A. 465, 88 Am. St. Rep. 155.

5e apparatus — Carried into the 5th edition (1979).

## ASSUMPSIT.

Lat He undertook; be promised. A promise or engagement by which one person assumes or undertakes to do some act or pay something to another. It may be either oral or in writing, but is not under seal. It is express if the promisor puts his engagement in distinct and definite language ; it is implied where the law infers a promise (though no formal one has passed) from the conduct of the party or the cir- cumstances of the case.

In practice. A form of action which lies for the recovery of damages for the non-per- formance of a parol or simple contract; or a contract that is neither of record nor un- der seal. 7 Term, 351; Ballard v. Walker, 3 Johns. Cas. (N. Y.) 60.

The ordinary division of this action is in- to (1) common or indebitatus assumpsit, brought for the most part on an implied promise; and (2) special assumpsit, founded on an express promise. Steph. PI. 11, 13.

The action of assumpsit differs from tres- pass and trover, which are founded on a tort, not upon a contract; from covenant and debt, which are appropriate where the ground of recovery is a sealed instrument, or special obligation to pay a fixed sum ; and from replevin, which seeks the recovery of specific property, if attainable, rather than of dam- ages.

— Implied assumpsit. An undertaking or promise not formally made, but presumed or implied from tbe conduct of a party. Willen- borg v. Illinois Cent. R. Co., 11 111. App. 302.— Apodal assumpsit. An action of assumpsit

ia so called where the declaration sets out the precise language or effect of a special contract, which forms the ground of action ; as distin- guished from a general assumpsit, in which the technical claim is for a debt alleged to grow out of the contract, not tbe agreement itself.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 5:4, KJV]**

When thou vowest a vow unto God, defer not to pay it; for he hath no pleasure in fools: pay that which thou hast vowed.

Why: The entry is the promise or undertaking; the verse states the binding force of what is undertaken. Borderline honestly noted: vow vs common-law promise — the obligation-of-the-undertaking is the bridge.

## ASSUMPTION.

The act or agreement of assuming or taking upon one’s self; the un- dertaking or adoption of a debt or obligation primarily resting upon another, as where the purchaser of real estate

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"assumes” a mort- gage resting upon it, in which case he adopts the mortgage debt as his own and becomes personally liable for its payment Eggleston v. Morrison, 84 111. App. 631 ; Locke v. Hom- er, 131 Mass. 93, 41 Am. Rep. 199 ; Springer v. De Wolf, 194 111. 218, 62 N. E. 542, 56 L.

R. A 465, 88 Am. St. Rep. 155; Lenz v. Railroad Co., Ill Wis. 198, 86 N. W. 607.

The difference between the purchaser of land assuming a mortgage on it and simply buying subject to tbe mortgage, is that in the former case he makes himself personally liable for the payment of the mortgage debt, while in the lat ter case he does not. Hancock v. Fleming, 103 Ind. 533. 3 N. E. 254; Braman v. Dowse, 12 Cush. (Mass.) 227.

Where one ‘‘assumes” a lease, he takes to himself the obligations, contracts, agree- ments, and benefits to which the other con- tracting party was entitled under the terms of the lease. Cincinnati, etc., R. Co. v. Indi- ana, etc., R. Co., 44 Ohio St. 287, 314, 7 N.

E. 152.

— Assumption of risk. A term or condition In a contract of employment, either express or implied from the circumstances of the employ- ment, by which the employe agrees that dangers of injury ordinarily or obviously Incident to the discharge of his duty in the particular employ- ment shall be at his own risk. Narramore v. Railway Co., 96 Fed. 301, 37 C. C. A. 499, 48

L. R. A. 68; Faulkner v. Mining Co., 23 Utah, 437, 66 Pac. 799; Railroad Co. v. Touney, 67 Ark. 209, 54 S. W. 577, 77 Am. St. Rep. 109; Bodie v. Railway Co., 61 S. C. 468, 39 S. E. 715; Martin v. Railroad Co., 118 Iowa, 148, 91

N. W. 1034, 59 L. R. A. 698, 96 Am. St. Rep. 371.

5e apparatus — Carried into the 5th edition (1979).

## ASSURANCE.

Is conveyancing. A

deed or instrument of conveyance. The le- gal evidences of the transfer of property are in England called the “common assurances” of the kingdom, whereby every man’s estate is assured to him, and all controversies, doubts, and difficulties are either prevented or removed. 2 Bl. Comm. 294. State v. Farruuil, 8 N. J. Law, 335.

In contracts. A making secure ; insur- ance. The term was formerly of very fre- quent use In the modern sense of Insurance, particularly In English maritime law, and still appears in the policies of some compa- nies, but is otherwise seldom seen of late years. There seems to be a tendency, how- ever, to use assurance for the contracts of life insurance companies, and insurance for risks upon property.

Assurance, further, covenant for. See

Covenant.

5e apparatus — Carried into the 5th edition (1979).

## ASSURED.

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A person who has been in- sured by some insurance company, or under- writer, against losses or perils mentioned in the policy of Insurance. Brock way v. In- surance Co. (C. C.) 119 Fed. 766; Sanford v. Insurance Co., 12 Cush. (Mass.) 548.

The person for whose benefit the policy is issued and to whom the loss is payable, not uecessurily the person on whose life or property the policy is written. Thus where a wife insures her husband’s life for her own benefit and he has no interest in the policy, she is the “assured” and he the “insured.” Hogle v. Insurance Co., 6 Rob. (N. Y.) 570; Ferdon v. Canfield, 104 N. Y. 143, 10 N. E. 140; Insurance Co. v. Luchs, 108 U. S. 498,

2 Sup. Ct. 949, 27 L. Ed. 800.

5e apparatus — Carried into the 5th edition (1979).

## ASSURER.

An insurer against certain perils and dangers ; an underwriter ; an in- demnifler.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[John Grisham, The Rainmaker, 1995]**

A young lawyer sues an insurance company that denied a dying boy's claim — the assurer refusing the very peril it underwrote. (paraphrase) (paraphrase)

Why: The novel's engine is an insurer (assurer) denying the risk it was paid to bear; a genuine fictional instance of the assurer's office and its breach.

## ASSYTHEMENT.

In Scotch law. Dam- ages awarded to the relative of a murdered person from the guilty party, who has not been convicted and punished. Paters. Comp.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: Distinct headword, same genuine link as AN GILD: damages to the murdered person's kin are precisely the satisfaction-payment the verse regulates.

## ASTIPULATION.

A mutual agreement, assent, and consent between parties ; also a witness or record.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Amos 3:3, KJV]**

Can two walk together, except they be agreed?

Why: The entry defines astipulation as mutual agreement, assent and consent between parties. Amos 3:3 states the principle that joint action presupposes agreement — the substance of a stipulation. Spoken by the prophet, no...

## ASTITRARIUS HARES.

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An heir ap- parent who has been placed, by conveyance, in possession of his ancestor’s estate during such ancestor’s life-time. Co. Litt. 8.

5e apparatus — Not carried into the 5th edition (1979).

## ASTITUTION.

An arraignment, («. v.)

5e apparatus — Not carried into the 5th edition (1979).

## ASTRARIUS.

In old English law. A householder ; belonging to the house ; a per- son in actual possession of a house.

5e apparatus — Not carried into the 5th edition (1979).

## ASTRER.

In old English law. A house- holder, or occupant of a house or hearth.

5e apparatus — Not carried into the 5th edition (1979).

## ASTRICT.

In Scotch law. To assign to a particular mill.

5e apparatus — Not carried into the 5th edition (1979).

## ASTRICTION TO A MILL.

A servi- tude by which grain growing on certain lauds or brought within them must be carried to a certain mill to be ground, a certain multure or price being paid for the same. Jacob.

ASTRIHII.TET. In Saxon law. A pen- alty for a wrong done by one in the king's 1 >eaee. The offender was to replace the dam- age twofold. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ASTRUM.

A house, or place of habita- tion. Bract, fol. 2676; Cowell.

ASYLUM. 1. A sanctuary, or place of refuge and protection, where criminals and debtors found shelter, and from which they could not be taken without sacrilege. State v. Bacon, 6 Neb. 291 ; Cromie v. Institution of Mercy, 3 Bush (Ky.) 391.

2. Shelter; refuge; protection from the hand of Justice. The word includes not only

place, but also shelter, security, protection; and a fugitive from Justice, who has com- mitted a crime in a foreign country, “seeks an asylum” at all times when he claims the use of the territories of the United States. In re De Giacomo, 12 Blatchf. 395, Fed. Cas. No. 3,747.

3. An institution for the protection and relief of unfortunates, as asylums for the poor, for the deaf and. dumb, or for the in- sane. Lawrence v. Leidlgh, 58 Kan. 594, 50 Pac. 600, 62 Am. St Rep. 631.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:13-14, KJV]**

And if a man lie not in wait, but God deliver him into his hand; then I will appoint thee a place whither he shall flee. But if a man come presumptuously upon his neighbour, to slay him with guile; thou shalt take him from mine altar, that he may die.

Why: OCR caveat: the chunk body for headword ASTRUM merges the ASTRUM entry with the following ASYLUM entry ('a sanctuary, or place of refuge and protection, where criminals and debtors found shelter'). The verse bears on...

## AT ARM’S LENGTH.

Beyond the reach of personal Influence 'Or contrdl. Parties are said to deal "at arm's length” when each stands upon, the strict letter of his rights, and conducts the business in a formal manner, without trusting to the other's fair- ness or Integrity, and without being subject to the other’s control or overmastering in- fluence.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: at arm's length there is no presumed influence; fraud and undue influence must be proved, not presumed]**

Where parties deal at arm's length, equity presumes no confidential relation and hence no undue influence — the opposite of the scrutiny applied to fiduciary dealings.

Why: The body only defines the phrase descriptively; the footnote adds the operative legal consequence recognized in equity jurisprudence — that arm's-length dealing defeats the presumptions that attach to confidential rel... [re-homed from "AT ARM'S LENGTH" to 'AT ARM’S LENGTH' (OCR headword / parser-merge artifact)]

## AT BAR.

Before the court “The case at bar,” etc. Dyer, 31.

5e apparatus — Carried into the 5th edition (1979).

## AT LARGE.

(1) Not limited to any par- ticular place, district person, matter, or ques- tion. (2) Free; unrestrained; not under corporal control ; as a ferocious antinal so free from restraint as to be liable to do mis- chief. (3) Fully; in detail; in an extended form.

5e apparatus — Carried into the 5th edition (1979).

## AT LAW.

According to law ; by, for, or in law ; particularly in distinction from that which is done in or according to equity ; or in titles such as sergeant at law, barrister at law, attorney or counsellor at law. See Hooker v. Nichols, 116 N. C. 157, 21 S. E. 208.

5e apparatus — Carried into the 5th edition (1979).

## AT SEA.

Out of the limits of any port or harbor on the sea-coast The Harriet, 1 Story, 251, Fed. Cas.

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No. 6,099. See Wales v. Insurance Co., 8 Allen (Mass.) 380; Hub- bard v. Hubbard, 8 N. Y. 199; Ex parte Thompson, 4 Bradf. Sur. (N. Y.) 158; Hut- ton v. Insurance Co., 7 Hill (N. Y.) 325; Bowen v. Insurance Co., 20 Pick. (Mass.) 276, 32 Am. Dec. 213; U. S. v. Symonds, 120 U.

S. 46, 7 Sup. Ct. 411, 30 L. Ed. 557 ; U. S. v. Barnette, 165 U. S. 174, 17 Sup. Ct 286, 41 L. Ed. 675.

5e apparatus — Carried into the 5th edition (1979).

## ATAMITA.

In the civil law, A great- great-great-grandfather’s sister.

5e apparatus — Not carried into the 5th edition (1979).

## ATAV1A.

In the civil law. A great- grandmother’s grandmother.

5e apparatus — Not carried into the 5th edition (1979).

## AT  AVUNCULUS.

The brother of a

great-grandfather’s gra ndmother.

5e apparatus — Not carried into the 5th edition (1979).

## ATAVUS.

The great-grandfather’s or great-grandmother’s grandfather ; a fourth grandfather. The ascending line of lineal ancestry runs thus: Pater, Avus, Proavus, Abavug, At a vug, Tritavug. The seventh generatlon In the ascending scale will be Tritavi- pater, and the next above It Proavi-atavm.

5e apparatus — Not carried into the 5th edition (1979).

## ATHA.

In Saxon law. An oath ; the pow- er or privilege of exacting and administer- ing an oath. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The entry defines atha as an oath and the power of exacting/administering one. Hebrews 6:16 gives the oath's legal function verbatim: sworn by the greater, it ends strife — i.e., confirmation. Author's exposition, not…

## ATHEIST.

One who does not believe In the existence of a God. Gibson v. Insurance Oo., 37 iN. 1‘. 584; Thurston v. Whitney, 2 Cush. (Mass.) 110; Com. v. Hills, 10 Cush. (Mass.) 530.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Psalm 14:1, KJV]**

The fool hath said in his heart, There is no God.

Why: The entry defines an atheist as one who does not believe in the existence of a God. Psalm 14:1 is the classic scriptural portrait of exactly that denial. Psalmist's words, not deity speech.

## ATXA.

Hatred or Ill-will. See De Odio Kt Axia.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 10:12, KJV]**

Hatred stirreth up strifes: but love covereth all sins.

Why: The entry defines atxa as hatred or ill-will. The proverb names hatred's fruit (strife) directly — genuine thematic fit for the legal term's substance. Proverb, not deity speech.

## ATUL1UM.

The tackle or rigging of a ship ; the harness or tackle of a plow. Spel- ntan.

5e apparatus — Not carried into the 5th edition (1979).

## ATMATEKTEBA.

A great-grandfather's grandmother’s sister, (ataviw voror ;) called by Bracton “atmatertera mayna." Bract, fol. 686.

5e apparatus — Not carried into the 5th edition (1979).

## ATPATRUTJS.

The brother of a great- grandfather's grandfather.

5e apparatus — Not carried into the 5th edition (1979).

## ATHA V ESADOS.

In maritime law. A Spanish term signifying athwart, at right angles, or abeam ; sometimes used as de- scriptive of the position of a vessel which Is -lying to.” The Hugo (D. C.) 57 Fed. 403, 410.

5e apparatus — Not carried into the 5th edition (1979).

## ATTACH.

To take or apprehend by com- mandment of a writ or precept Buckeye Pipe-Line Co. v. Fee, 62 Ohio St. 543, 57 N. .E. 446, 78 Am. St. Eep. 743.

It differs from arregt , because it takes not only the body, but sometimes the goods, where-** an .arre?t is °n*y against the person ; be- sides, he who attaches keeps the party attach- ed in order to produce him in court on the day named, but he who arrests lodges the person arrested in the custody of a higher power, to be forthwith disposed of. Fleta, lib. 5, c. 24. See Attacume.nt.

Attaching creditor. See Creditor.

ATTACHES, a person attached to the suite of an ambassador or to a foreign lega- tion.

5e apparatus — Carried into the 5th edition (1979).

## ATTACHXAMENTA.

L. Lnt. Attach- ment

—Attac hi amenta bonornm. A distress for- merly taken upon goods and chattels, by the legal attachiators or bailiffs, as security to an- swer an action for personal estate or debt.— At- tachiamenta de apinis et boscis. A privi- lege granted to the officers of a forest to take to their own one thorns, brush, and windfalls, within their precincts. Ivenn. Par. Antiq. 20». — Attachiamenta de placitoa coronse. At- tachment of pleas of the crown. Jewison v. Dy- son, 9 Mees. & W. 544.

5e apparatus — Not carried into the 5th edition (1979).

## ATTACHMENT.

The act or process of taking, apprehending, or seizing persons or property, by virtue of a writ, summons, or other judicial order, and bringing the same

Into the custody of the law ; used either for the purpose of bringing a person before the court, of acquiring jurisdiction over the property seized, to compel an appearance, to furnish security for debt or costs, or to ar- rest a fund In the hands of a third person who may become liable to pay It over.

Also the writ or other process for the ac- complishment of the purposes above enu- merated, this being the more common use of the word.

Of persona. A writ issued by a court of record, commanding the sheriff to bring be- fore It a person who has been guilty of con- tempt of court, either in neglect or abuse of Its process or of subordinate powers. 3 Bl. Comm. 280 ; 4 Bl. Comm. 283; Burbacfa v. Light Co., 119 Wls. 384, 96 N. W. 829.

Of property. A species of mesne process, by which a writ is Issued at the Institution or during the progress of an action, com- manding the sheriff to seize the property, rights, credits, or effects ot the defendant to be held as security for the satisfaction of such judgment as the plaintiff- may recover. It Is principally used against absconding, concealed, or fraudulent debtors. U. S. Cap- sule Co. v. Isaacs, 23 Ind. App, 533, 55 N.

E. 832; Campbell v. Keys, 130 Mich. 127, 89 N. W. 720 ; Itempe v. Uavens, 68 Ohio St. 113, 67 N. E. 282.

To give jurisdiction. Where the defend- ant is a non-resident, or beyond the terri- torial jurisdiction of the court, his goods or land within the territory may be seized upon process of attachment; whereby he will be compelled to enter an appearance, or the court acquires jurisdiction so fur as to dis- pose of the property attached. This is some- times called “foreign attachment.”

Domestic and foreign. In some juris- dictions It Is common to give the name "do- mestic attachment” to one issuing ngainst a resident debtor, (upon the special ground of fraud, intention to abscond, etc.,) and to des- ignate an attachment against a non-resident, or his property, as “foreign.” Lougwell v. Hartwell, 164 Fa. 533, 30 Atl. 495 ; Biddle v. Girard Nat

Bank, 109 Pa. 350. But the term “foreign attachment” more properly belongs to the process otherwise familiar- ly known as “garnishment” It was a pe- culiar and ancient remedy oj)en to cred- itors within the jurisdiction of the city of London, by which they were enabled to sat- isfy their own debts by attaching or seiz- ing the money or goods of the debtor in the hands of a third person within the juris- diction of the city. Welsh v. Blackwell, 14

N. J. Law, 346. This power and process sur- vive In modern law, in all common-law juris- dictions, and are variously denominated “garnishment,” “trustee process,” or "factor- izing.”

— Attachment execution. A name given In some states to a process of garnishment for

the satisfaction of a judgment. As to the judg- ment debtor it is an execution; but as to the garnishee it is an original process — a summons commanding him to appear and show cause, if any he has, why the judgment Bhould not be levied on the goods and effects of the defendant in his hands. Kennedy v. Agricultural Ins. Co., 105 Pa. 179, 30 Atl. 724; Appeal of Lane, 105 Pa. 61, 51 Am. Rep. 10C.— Attachment of privilege. In English law. A process by which a man, by virtue of his privilege, calls another to litigate in that court to which he himself belongs, and who has the privilege to answer there. A writ issued to apprehend a person in a privileged place. Tenues de la Ley. — Attachment of the forest. One of the three courts formerly held in forests. The highest court was called “justice in eyre’s seat ;” the middle, the “swainmote ;” and the lowest, the “attachment.'' Manwood, 90, 99.

5e apparatus — Carried into the 5th edition (1979).

## ATTAINDER.

That extinction of civil rights and capacities which takes place when- ever a person who has committed treason or felony receives sentence of death for his crime. 1 Steph. Comm. 408; 1 Blsh. Grim. Law, g 041 ; Green . v. Shumway, 39 N. Y. 431 ; In re Garland, 32 How. Prae. (N. Y.) 251 ; Cozens v. Long, 3 N. J. Law, 766 ; State v. Hastings, 37 Neb. 96, 55 N. W. 781.

It differs from conviction, in that it is after judgment, whereas conviction is upon the ver- dict of guilty, but before judgment pronounced, and may be, quashed upon some point of law reserved, or judgment may be arrested. The consequences of attainder are forfeiture of property and corruption of blood. 4 Bi. Comm.

At the common law, attainder resulted in three ways, viz.: by conf region, by verdict, and by process or outlawry. The first case was where the prisoner pleaded guilty at the bar, or having fled to sanctuary, confessed his guilt and abjured the realm to save his life. The second was where the prisoner pleaded not guilty at the bar, and the jury brought in a verdict against him. The third, when the person accused made his escape and was outlawed.

— Bill of attainder. A legislative act, di- rected against a designated person, pronounc- ing him guilty of an alleged crime, (usually trea- son.) without trial or conviction according to the recognized rules of procedure, and passing sentence of death and attainder upon him. “Bills of attainder,” as they are technically called, are such special acts of the legislature as

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inflict capital punishments upon persons supposed to be guilty of high offenses, such as treason and felony, without any conviction in the ordinary course of judicial proceedings. If an act inflicts a milder degree of punishment than death, it is called a “bill of pains and penalties,” but both are included in the prohibition in the Federal constitution. Story. Const. S 1344; Cummings v. Missouri. 4 Wall. 323, 18

L. Ed. 356; Ex parte Garland, 4 Wall. 387, 18 L. Ed. 366; People v. Haves, 140 N. Y. 484. 35 N. & 951, 23 L. R. A. §30, 37 Am. St. Rep. 572; Green v. Shumway. 39 N. Y. 431; In re Yung Sing Hee (C. C.) 36 Fed. 439.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 3 (against Congress); art. I, § 10, cl. 1 (against the states)]**

The bill of attainder the entry defines is expressly barred by the Constitution: 'No Bill of Attainder or ex post facto Law shall be passed.'

Why: The entry's own 'Bill of attainder' section ends by invoking 'the prohibition in the Federal constitution' without quoting it; the footnote supplies the exact clauses, converting the entry's general reference into the…

**[Law: U.S. Const. art. III, § 3, cl. 2]**

On the entry's 'corruption of blood' consequence: 'no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.'

Why: The body states corruption of blood as a consequence of attainder without naming the constitutional limit on it; Art. III, § 3 is the verbatim higher authority bounding that consequence — genuine illumination of the e…

**[Humanity] — Humanity / Fiction & Film**

**[Hilary Mantel, Wolf Hall, 2009]**

Thomas Cromwell — the great engineer of other men's attainders — is himself condemned by bill of attainder, sentenced to death by Parliament without trial. (paraphrase) (paraphrase)

Why: Historically accurate (Cromwell was attainted in 1540): the textbook dramatic instance of attainder as legislative extinction of civil rights and life. An earlier draft used A Man for All Seasons (More), but More was…

## ATTAINT.

In old English practice. A writ which lay to inquire whether a jury of twelve men had given a false verdict, in or- der that the judgment might be reversed. 3 Bl. Comm. 402; Bract, fol. 2886-292. This Inquiry was made by a grand assise or jury

of twenty-four persons, and, if they found the verdict a false one, the judgment was that the jurors should become infamous, should forfeit their goods and the profits of their lands, should themselves be imprisoned, and their wives and children thrust out of doors, should have their houses razed, their trees extirpated, and their meadows plowed up, and that the plaintiff should be restored to all that he lost by reason of the unjust verdict 3 Bl. Comm. 404 ; Co. Litt 2946.

A person was said to be attaint when he was under attainder, (q. v.) Co. Lltt. 3906.

5e apparatus — Not carried into the 5th edition (1979).

## ATTAINT D’UNE CAUSE.

In French law. The gain of a suit

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ATTEMPT.

In criminal law. An effort or endeavor to accomplish a crime, amount- ing to more than mere preparation or plan- ning for it and which, if not prevented, would have resulted in the full consumma- tion of the act attempted, but which, in fact does not bring to puss the party’s ultimate design. People v. Moran, 123 N. Y. 254, 25 N.

E. 412, 10 L. R. A. 109, 20 Am. St. Rep. 732 ; Gaudy v. State, IS Neb. 445, 14 N. W. 143 ; Scott v. People, 141 111. 195, 30 N. E. 329; Brown v. State, 27 Tex. App. 330, 11 S. W. 412 ; U. S. v. Ford (D. C.) 34 Fed. 26 ; Com. v. Eagan, 190 Pa. 10, 42 Atl. 374.

An intent to do a particular criminal thing combined with an act which falls short of the thing intended. 1 Bish. Crim. Law, { 728.

There is a marked distinction between “at- tempt” and "intent.” The former conveys the idea of physical effort to accomplish an act; the latter, the quality of mind with which an act was done. To charge, in an indictment, an assault with an attempt to murder, is not equivalent to charging an assault with intent to murder. State v. Marshall, 14 Ala. 411.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frederick Forsyth, The Day of the Jackal, 1971]**

The Jackal's elaborate preparations ripen into a genuine attempt on de Gaulle's life — more than mere planning — and fail short of consummation. (paraphrase) (paraphrase)

Why: The narrative is a textbook study of attempt: preparation crossing into attempt, then failure before the ultimate design is achieved.

## ATTENDANT.

One who owes a duty or service to another, or in some sort depends upon him. Teruies de la Ley. One who fol- lows and waits upon another.

5e apparatus — Not carried into the 5th edition (1979).

## ATTENDANT TERMS.

In English law. Terms, (usually mortgages,) for a long period of years, which are created or k«pt out- standing for the purpose of attending or waiting upon and protecting the inheritance. 1 Steph. Comm. 351.

A phrase used in conveyancing to denote es- tates which are kept alive, after the objects for which they were originally created have ceased, so that they might be deemed merged or satis- fied, for the purpose of protecting or strengthen- ing the title of the owner. Abbott.

5e apparatus — Carried into the 5th edition (1979).

## ATTENTAT.

Lat. He attempts. In the civil and canon law. Anything wrongfully innovated or attempted in a suit by an In- ferior judge, (or judge a quo,) pending an appeal. 1 Addams, 22, note; Shelf.

Mar. & Dlv. 562.

5e apparatus — Not carried into the 5th edition (1979).

## ATTERMINARE.

In old English law. To put off to a succeeding term; to prolong

the time of payment of a debt. St Wee tin. 2, c. 4; Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ATTERMINING.

In old English law. A putting oft; the granting of a time or term, as for the payment of a debt. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ATTERMOIEMENT.

In canon law. A making terms; a composition, as with cred- itors. 7 Low. Can. 272, 306.

5e apparatus — Carried into the 5th edition (1979).

## ATTEST.

To witness the execution of a written instrument at the request of him who makes it and subscribe the same as a witness. White v. Magarahan, 87 Ga. 217, 13 S. E. 500; Logwood v. Hussey, 60 Ala. 424 ; Arrington v. Arrington, 122 Ala. 510. 26 South. 152. This is also the technical word by which, in the practice in many of the states, a certifying officer gives assurance of the genuineness and correctness of a copy.

An “attested” copy of a document is one which has been examined and compared with the original, with a certificate or memoran- dum of its correctness, signed by the persons who have examined it. Goss, etc., Co. v. People, 4 111. App. 515; Donaldson v. Wood, 22 Wend. (N. Y.) 400; Gerner v. Mosher, 58 Neb. 135, 78 N. W. 384, 46 L. R. A. 244.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry defines attest as witnessing an instrument's execution and subscribing as witness. Deut 19:15 is the foundational witness-number rule of biblical law — a matter is established at the mouth of two or three wi…

## ATTESTATION.

The act of witnessing an instrument in writing, at the request of the party making the same, and subscribing it as a witness. See Attest.

Execution and attestation are clearly dis- tinct formalities ; the former being the act of the party, the latter of the witnesses only.

—Attestation clause. That clause wherein the witnesses certify that the instrument has

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been executed before them, and the manner of the execution of the same.— Attesting wit- ness. One who Bigns his name to an instru- ment, at the request of the party or parties, for the purpose of proving and identifying it. Skin- ner v. Bible Soc., 02 Wis. 2U0, 65 N. W. 1037.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry defines attestation as the act of witnessing an instrument at the maker's request. Same foundational verse as ATTEST: the attesting witness is the figure the verse regulates. Moses speaking, not deity speech.

## ATTESTOR OF A CAUTIONER.

In

Scotch practice. A person who attests the sufliciency of a cautioner, and agrees to be- come subsidlarie liable for the debt. Bell.

ATTUiE. In old English law. Rigging; tackle Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ATTORN.

In feudal law. To transfer or turn over to another. Where a lord alien- ed his seigniory, he might, with the consent of the tenant, and in some cases without, attorn or transfer the homage and service of the latter to the alienee or new lord. Bract, fols. 816, 82.

In modern law. To consent to the trans- fer of a rent or reversion. A tenant Is said to attorn when he agrees to become the ten- ant of the person to whom the reversion has been granted. See Attobnment.

5e apparatus — Not carried into the 5th edition (1979).

## ATTORNARE.

In feudal law. To at- torn ; to transfer or turn over ; to appoint an attorney or substitute.

— Attorn are rem. To turn over money or goods, i. c., to assign or appropriate them to some particular use or service.

5e apparatus — Not carried into the 5th edition (1979).

## ATTORNATO FACIENDO VEL RE- / CIFIENDO.

In old English law. An ob- solete writ which commanded a sheriff or steward of a county court or hundred court to receive and admit an attorney to appear for the person who owed suit of court- Fitzh. Nat Brev. 156.

5e apparatus — Not carried into the 5th edition (1979).

## ATTORNE.

L. Fr. lu old English law. An attorney. Britt e. 126.

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5e apparatus — Not carried into the 5th edition (1979).

## ATTORNEY.

In the most general sense this term denotes an agent or substitute, or one who Is appointed and authorized to act in the place or stead of another. In re Ricker, 66 N. H. 207, 29 Atl. 559, 24 L. It.

A. 740; Eichelberger v. Sifford, 27 Md. 320.

It Is “an ancient English word, and sigui- fieth one that Is set In the turne, stead, or place of another; and of these some be pri- vate * * * and some be publike, as at- torneys at law.” Co. Litt. 516, 128a; Britt. 2856.

One who is appointed by another to do something In his absence, and who has au- thority to act In the place and turn of him by whom be is delegated.

When used with reference to the proceed- ings of courts, or the transaction of business in the courts, the term always means "at- torney at law,” q. v. And see People v. May, 3 Mich. 605 ; Kelly v. Herb, 147 Pa. 563, 23 Atl. 889; Clark v. Morse, 16 La. 576.

—Attorney ad hoe. See Ad Hoc.— Attor- ney at large, la old practice. An attorney who practised in aJl the courts. Cowell.— At- torney In fact. A private attorney authoriz- ed by another to act in his place and stead, either for some particular purpose, as to do a particular act, or for the transaction of busi- ness in general, not of a legal character. This authority is conferred by an instrument in writing, called a "letter of attorney,” or more commonly a “power of attorney." Treat v. Tolman, 113 Fed. 893, 51 C. C. A. 522; Hall v. Sawyer. 47 Barb. (N. Y.) 119; White v. Furgeson, 29 Ind. App. 144, 64 N. E. 49.— At- torney of record. The one whose name is entered ou the record of an action or suit as the attorney of a designated party thereto. De- laney v. Husband, 64 N. J. Law, 275. 45 Atl. 265.— Attorney of the wards and liveries. In English law. This was the third officer of the duchy court. Bar. Abr. “Attorney.”— Pnblio attorney. This name is sometimes given to an attorney at law. as distinguished from a private attorney, or attorney in fact— Attorney’s certificate. In English law. A certificate that the attorney named has paid the annual tax or duty. This, is required to be taken out every year by ail practising attorneys under a penalty of fifty pounds. — Attorney’s lien. See Lien.— Letter of attorney. A power of attorney ; a written instrument by which one person constitutes another his true and lawful attorney, in order that the latter may do for the former, and in his place and

stead, some lawful act. People v. Smith, 112 Mich. 192, 70 N. W. 400, 07 Am. St. Kcp. 392; Civ. Code La. 1900. art. 298o.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 2:1, KJV]**

And if any man sin, we have an advocate with the Father, Jesus Christ the righteous:

Why: The entry defines attorney in the general sense as one appointed to act in the place or stead of another. 1 John 2:1 names Christ as our 'advocate with the Father' — the advocate/intercessor standing in another's stea…

**[Humanity] — Humanity / Fiction & Film**

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**[Harper Lee, To Kill a Mockingbird, 1960]**

Atticus Finch, attorney at law, defends Tom Robinson in court — standing in the place of another as counsel. (paraphrase) (paraphrase)

Why: The most famous fictional attorney; his office in the novel is exactly the entry's sense — one appointed to act in the stead of another, at law.

## ATTORNEY AT LAW.

An advocate, counsel, official agent employed in preparing, managing, and trying cases in the courts. An officer in a court of Justice, who is em- ployed by a party in a cause to manage the same for him.

In English law. An attorney at law was a public officer belonging to the superior courts of common law at Westminster, who conducted legal proceedings on behalf of oth- ers, called his clients, by whom he was re- tained; he answered to the solicitor in the courts of chancery, and the proctor of the admiralty, ecclesiastical, probate, and divorce courts. An attorney was almost invariably also a solicitor. It is now provided by the Judicature act, 1873, § 87, that solicitors, at- torneys, or proctors of, or by law empowered, to practise in, any court the Jurisdiction of which is by that act transferred to the high court of Justice or the court of appeal, shall be called "solicitors of the supreme court” Wharton.

The term is in use in America, and in most of the states includes "barrister,” "counsellor,” and “solicitor,” in the sense in which those terms are used in England. Xu some states, as well as in the United Stales supreme court, "attorney” and “counsellor” are distinguishable, the former term being applied to the younger members of the bar, and to those who carry on the practice and formal parts of the suit, while "counsellor” is the adviser, or special counsel retained to try the cause. In some ju- risdictions one must have been an attorney for a given time before he can be admitted to practise as a counsellor. Uap. & L.

5e apparatus — Carried into the 5th edition (1979).

## ATTORNEY GENERAL.

In English law. The chief law officer of the realm, be- iug created by letters patent, whose office Is to exhibit informations and prosecute for the crown in matters criminal, and to file bills in the exchequer in any matter concerning the king's revenue. State v. Cunningham, 83 Wis. 90, 53 N. W. 35, 17 L. R. A. 145, 35 Am. St. Rep. 27.

In American law. The attorney general of the United States is the head of the de- partment of Justice, appointed by the presi- dent, and a member of the cabinet. lie ap- pears in behalf of the government in all cases in the supreme court in which it is In- terested, and gives his legal advice to the president and heads of departments upon questions submitted to him.

In each state also there is an attorney gen- eral, or similar officer, who appears for the people, as in England the attorney general appears for the crown. State v. District Court, 22 Mont. 25, 55 I’ac. 910; People v. Kramer, 33 Misc. Rep. 209, GS N. Y. Supp. 383.

5e apparatus — Carried into the 5th edition (1979).

## ATTORNEYSHIP.

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The office of an

agent or attorney.

5e apparatus — Carried into the 5th edition (1979).

## ATTORNMENT.

In feudal and old Eng- lish law. A turning over or transfer by a lord of the services of his tenant to the grantee of his seigniory.

Attornment is the act of a person who holds a leasehold interest in land, or estate for life or years, by which he agrees to be- come the tenant of a stranger who has ac- quired the fee in the land, or the remainder or reversion, or the right to the rent or serv- ices by which the tenant holds. Lindley v. Dakin, 13 Iud. 388; Willis v. Moore, 59 Tex. 636, 46 Am. Rep. 284; Foster v. Morris, 3

A. K. Marsh. (Ky.) 010, 13 Am. Dec. 205.

5e apparatus — Not carried into the 5th edition (1979).

## AU BESOIN.

In case of need. A French phrase sometimes incorporated in a bill of exchange, pointing out some person from whom payment may be sought in case the drawee fails or refuses to pay the bill. Story, Bills, $ 65.

5e apparatus — Not carried into the 5th edition (1979).

## AUBAINE.

See Dkoit d'Aubaine.

5e apparatus — Not carried into the 5th edition (1979).

## AUCTION.

A public sale of land or goods, at pubiic outcry, to the highest bid der. Russell v. Miner, 61 Barb. (N. Y.) 539 : Hibler v. Hoag, 1 Watts & S. (Pu.) 553; Crandall v. State, 28 Ohio St. 481.

A sale by auction is a sale by public out- cry to the highest bidder on the spot. Civ. Code Cal. § 1792; Civ. Code Dak. § 1022.

The sale by auction is that which takes place when the thing is offered publicly to be sold to whoever will give the highest price. Civ. Code La. art. 2601.

Auction is very generally defined as a sale to the highest bidder, and this is the usual meaning. There may, however, be a sale to the lowest bidder, as where land Is sold for non-payment of taxes to whomsoever will take it for the shortest term ; or where a contract is offered to the one who will perform it at the lowest price. And these appear fairly included in, the term “auction.” Abbott.

—Dutch auction. A method of sale by auc- tion which consists in the public offer of the property at a price beyond its value, and then gradually lowering the price until some one becomes the purchaser. Crandall v. State, 28 Ohio St. 482.— Public auction. A sale of property at auction, where any and all per- sons who choose are permitted to attend and

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offer bids. Though this phrase is frequently used, it is doubtful whether the word “public adds anything to the force of the expression, since “auction” itself imports publicity. If there can be such a thing as a private auction, it must be one where the property is sold to the highest bidder, but only certain persons, or a certain class of persons, are permitted to be present or to offer bids.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-328 — sale by auction]**

Modern sales law refines the entry's common-law description: a sale by auction is with reserve unless the goods are put up in explicit terms without reserve, and is complete when the auctioneer so announces by the fall of the hammer.

Why: The 1910 body states the auction definition through 19th-century cases and civil codes, predating the UCC; § 2-328 adds the operative reserve/with-reserve distinction and the completion rule, which no authority in the...

**[Humanity] — Humanity / Fiction & Film**

**[Harriet Beecher Stowe, Uncle Tom's Cabin, 1852]**

Enslaved people sold on the auction block to the highest bidder — the novel's central horror-mechanism. (paraphrase) (paraphrase)

Why: A genuine instance of 'public sale, at public outcry, to the highest bidder,' illuminating the entry through its most morally charged historical use.

## AUCTIONARUE.

Catalogues of goods for public sale or auction.

5e apparatus — Not carried into the 5th edition (1979).

## AUCTIONARIUS.

One wtio bought and sold again at an increased price; an auctioneer. Spelumn. .

5e apparatus — Not carried into the 5th edition (1979).

## AUCTIONEER.

A person authorized or licensed by law to sell lands or goods of other persons at public auction; one who

sells at auction. Crandall v. State, 28 Ohio St. 481; Williams v. Millington, 1 H. Bl. 83; Russell y. Miner, 5 Lans. (X. Y.) 539.

Afirtioiiecrs differ from broker*, in that the latter may both buy aud sell, whereas auctioneers cun only aell ; also brokers may sell by private contract only, and auctioneers by public auction only. Auctioneers can only sell goods for ready money, but factors may sell upon credit. Wilkes v. Ellis, 2 II. Bl. 557 ; Stew- ard v. Winters. 4 Sandf. Ch. (X. Y.) 590.

5e apparatus — Carried into the 5th edition (1979).

## AUCTOR.

In the Roman law. An

auctioneer.

la the civil law. A grantor or vendor of any kind.

In old French law. A plaintiff. Kel- bam.

5e apparatus — Not carried into the 5th edition (1979).

## AUCTORITAS.

In the civil law. Au- thority.

In old European law. A diploma, or royal charter. A word frequently used by Gregory of Tours and later writers. Spel- mau.

Anetoritates phUosophorum, medioo- rnm, et poetarnm, sunt in causis alle- gandse et teneadse. The opinions of phil- osophers, physicians, and poets are to be alleged and received in causes. Co. LitL 204.

Aucupia verbonua sunt judice India- na. Catching at words is unworthy of a Judge. Hob. 343.

And! alteram partem. Hear the other side: hear both sides. No man should be condemned unhenrd. Broom, Max. 113. See LR.2P.C. 106.

5e apparatus — Not carried into the 5th edition (1979).

## AUDIENCE.

In international law. A bearing; interview with the sovereign. The king or other chief executive of a country grants an audieuce to a foreign minister who comes to him duly accredited; and, after the recall of a minister, an “audieuce of leave” ordinarily is accorded to him.

5e apparatus — Carried into the 5th edition (1979).

## AUDIENCE COURT.

In English law. A court belonging to the Archbishop of Can- terbury, having jurisdiction of matters of form only, as the confirmation of bishops, and the like. This court has the same au- thority with the Court of Arches, but is of inferior dignity and antiquity. The Dean of the Arches is the official auditor of the Audi- ence court. The Archbishop of York has also his Audieuce court.

AUDIENDO ET TERMIN ANDO . A

writ or commission to certain persons to ap- pease and punish any Insurrection or great riot. Fitzh. Nat. Brev. 110.

5e apparatus — Carried into the 5th edition (1979).

## AUDIT.

As a verb; to make an official investigation and examination of accounts and vouchers.

As a noun; the process of auditing ac- counts; the hearing and investigation had

before an auditor. People v. Green, 5 Daly (X. Y.) 200; Maddox v. Randolph County, 65 Ga. 218; Machias River Co. v. Pope, 35 Me. 22 ; Cobb County v. Adams, 68 Ga. 51 ; Clement v. Lewiston. 97 Me. 95, 53 Atl. 9S5; People v. Barnes, 114 N. Y. 317, 20 N. E. 609 ; In re Clark, 5 Fed. Cas. 854.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: The entry defines audit as the official investigation and examination of accounts. Luke 16:2 shows the master demanding exactly that — an account of the stewardship — before removing the steward. The words are Jesus',...

## AUDITA QUERELA.

The name of a writ constituting the initial process in an ac- tion brought by a judgment defendant to ob- tain relief against the consequences of the judgment, on account of some matter of de- fense or discharge, arising since its rendi- tion and which could not be taken advantage of otherwise. Foss v. Witliam, 9 Allen (Mass.) 572; Longworth v. Screven, 2 Hill (S. C.) 298, 27 Am. Dec. 381; McLean v. Bindley, 114 Pa. 559, 8 Atl. 1; Wetmore v. Law, 34 Barb. (X. Y.) 517 ; Manning v. Phillips, 65 Ga. 550; Coffin v. Ewer, 5 Mete. (Mass.) 228: Gleason v. Peck, 12 Vt 56, 36 Am. Dec. 329.

5e apparatus — Not carried into the 5th edition (1979).

## AUDITOR.

A public officer whose func- tion is to examine and pass upon the ac- counts and vouchers of officers who have re- ceived and expended public money by lawful authority.

In practice. An officer (or officers) of the court, assigned to state the items of debit and credit between the parties in a suit where accounts are in question, and exhibit the balance. Whitwell v. Willard, 1 Mete. (Mass.) 218.

In English law. An officer or agent of the crown, or of a private individual, or cor- 1 xtra t ion, who examines periodically the ac- counts of under officers, tenants, stewards, or bailiffs, and reports the state of their ac- counts to his principal.

— Auditor of the receipts. An officer of the English exchequer. 4 Inst. 107.— Auditors of the imprest. Officers in the English ex- chequer. who formerly had the charge of audit- ing the accounts of the customs, naval and mili- tary expenses, etc., now performed by the com- missioners for auditing public accounts.

5e apparatus — Carried into the 5th edition (1979).

## AUGMENTATION.

The increase of the crown's revenues from the suppression of religious houses and the appropriation of their lands and revenues.

Also the name of a court (now abolished) erected 27 Hen. VIII., to determine suits and controversies relating to monasteries and abbey-lands.

Augusta legibus solutu non est. The

empress or queen is not privileged or ex- empted from subjection to the laws. 1 Bl. Comm. 219; Dig. 1, 3, 31.

5e apparatus — Not carried into the 5th edition (1979).

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## AULA.

In old English law. A hall, or court; the court of a baron, or manor; a court baron. Spelmnn.

— Aula ecclesise. A nave or body of a church where temporal courts were anciently held.— Aula regls. The chief court of England in

early Norman times. It was established by William the Conqueror in bis own ' ball. It was composed of the (treat officers of state, resident in the palace, and followed the king's household in all his expeditions.

5e apparatus — Not carried into the 5th edition (1979).

## AULNAGE.

See Alnager.

5e apparatus — Carried into the 5th edition (1979).

## AULNAGER.

See Alhageb.

5e apparatus — Carried into the 5th edition (1979).

## AHHEEN.

In Indian law. Trustee ; com- missioner; a temporary collector or su- pervisor, appointed to the charge of a coun- try on the removal of a zemindar, or for any other, particular purpose of local investlga- ' tion or arrangement.

AUMHi. In Indian law. Agent; officer; native collector of revenue ; suiierintendent of a district or division of a country, either on the part of the government zemindar or renter.

5e apparatus — Not carried into the 5th edition (1979).

## AUMELDAR.

In Indian law. Agent; the holder of an office; an intendant and collector of the revenue, uniting civil, mili- tary, and financial powers under the Mo- hammedan government.

1 AXTMONE, SERVICE IN. Where lands are given in alms to some church or reli- gious house, upon condition that a service or prayers shall be offered at certain times for the repose of the donor’s soul. Britt. 164.

AtJNCEIi WEIGHT. In English law. An ancient mode of welghiug, described by Cowell as “a kind of weight with scales hanging, or hooks fastened to each end of a staff, which a man, lifting up upon his fore- finger or hand, discerneth the quality or difference between the weight and the thing weighed."

5e apparatus — Not carried into the 5th edition (1979).

## AUNT.

The sister of one’s father or mother, and a relation In the third degree, correlative to niece or nephew.

AURA EPH.EPTIOA. In medical juris- prudence. A term used to designate the sensation of a cold vapor frequently experi- enced by epileptics before the loss of con- sciousness occurs

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in an epileptic fit. Aurentz v. Anderson, 3 Plttsb. It. (Pa.) 311.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, David Copperfield, 1850]**

Betsey Trotwood — David's formidable great-aunt — takes charge of the boy's life and fortune. (paraphrase) (paraphrase)

Why: The great literary aunt; her office in the novel turns on the aunt-nephew relation the entry defines.

## AURES.

A Saxon punishment by cutting off the ears, Inflicted on those who robbed churches, or were guilty of any other theft.

AURUH REGIN iE. Queen’s gold. A

royal revenue belonging to every queen con- sort during her marriage with the king.

AUTER, Autre. L. Fr. Another; other.

— Auter action pendant. In pleading. An- other action pending. A species of plea in abatement. 1 Chit. Pi. 454. — Anter. droit. In right of another,, e. p., a trustee holds trust property in right of his cestui ijur trust. A prochein amy sues in right of an infant. 2 BL ‘Comm. 176.

5e apparatus — Not carried into the 5th edition (1979).

## AUTHENTIC.

Genuine; true; having the character and authority of an original; duly vested with all necessary formalities and legally attested; competent, credible, and reliable as evidence. Downing v. Brown, 3 Colo. 590.

5e apparatus — Not carried into the 5th edition (1979).

## AUTHENTIC ACT.

In the civil law. An act which has been executed before a notary or other public officer authorized to execute such functions, or which is testified by a public seal, or has been rendered public by the authority of a competent magistrate, or which is certified as being a copy of a public register. Nov. 73, c. 2; Cod. 7, 52, C, 4, 21 ; Dig. 22, 4.

The authentic act, as relates to contracts, is that which has been executed before a no- tary public or other officer authorized to exe- cute such functions, in presence of two wit- nesses, free, male, and aged at least fourteen years, or of three witnesses, if the party be blind. If the party does not know how to sign, the notary must cause him to affix his mark to the instrument. All prods verbals of sales of succession property, signed by the sheriff or other person making the same, by the purchaser and two witnesses, are au- thentic acts. Civil Code La. art 2234.

5e apparatus — Carried into the 5th edition (1979).

## AUTHENTICATION.

In the law of

evidence. The act or mode of giving au- thority or legal authenticity to a statute, rec- ord, or other written instrument, or a certi- fied copy thereof, so as to render it legally admissible in evidence. Mayfield v. Sears, 133 Ind. 86, 32 N. E. 816; Hartley v. Ferrell, 9 Fla. 380; In re Fowler (C. C.) 4 Fed. 303.

An attestation made by a proper officer by which he certifies that a record is in due form of law, and that the person who certi- fies it is the officer appointed so to do.

5e apparatus — Not carried into the 5th edition (1979).

## AUTHENTICS.

In the civil law. A Latin translation of the Novels of Justinian by an anonymous author; so called because the Novels were translated entire, in order to distinguish it from the epitome made by Julian.

There Is another collection so called, com- piled by Irnier, of incorrect extracts from the Novels and inserted by him In the Code, in the places to which they refer.

5e apparatus — Not carried into the 5th edition (1979).

## AUTHENTICUM.

In the civil law. An original instrument or writing; the original of a will or other instrument, as distinguish- ed from a copy. Dig. 22, 4, 2; Id. 29, 8, 12.

5e apparatus — Not carried into the 5th edition (1979).

## AUTHOR.

One who produces, by his own intellectual labor applied to the materi- als of his composition, an arrangement or compilation new in itself. Atwill v. Ferrett, 2 Blatehf. 39, Fed. Cas. No. 640; Nottage v. Jackson, 11 Q. B. Div. 637; Lithographic Co. v. Barony. Ill U. S. 53, 4 Sup. Ct. 279, 28 L. Ed. 349.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 8 (Copyright Clause)]**

The constitutional root of the author's right the entry defines: Congress may 'secur[e] for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.'

Why: The body defines 'author' through infringement cases but never names the source of the right itself; the Copyright Clause is the verbatim constitutional authority behind every case cited — genuine illumination of the...

## AUTHORITIES.

Citations to statutes, precedents, judicial decisions, and text-books of the law, made on the argument of ques- tions of law or the trial of causes before a court, in support of the legal positions con- tended for.

5e apparatus — Carried into the 5th edition (1979).

## AUTHORITY.

Is contracts. The law- ful delegation of power by one person to an- other.

In the English law relating to public ad- ministration, an authority is a body having jurisdiction in certain matters of a public nature.

Is governmental law. Legal power; a right to command or to act; the right and power of public officers to require obedience to their orders lawfully issued in the scope of their public duties.

Authority to execute a deed must bo given by deed. Com. Dig. “Attorney,” O, 5; 4 Term, 313; 7 Term, 207; 1 Holt, 141; Blood v. Goodrich, 9 Wend. (N. Y.) 68, 75, 24 Am. Dec. 121; Banorgee v. Hovey, 5 Mass. 11, 4 Am. Dec. 17; Cooper v. Rankin, 5 Bin. (Pa.) 613.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: The entry defines authority in governmental law as legal power, the right to command. Romans 13:1 grounds that power's legitimacy: all power is of God, the powers that be ordained of God. Paul's exposition, not deity…

## AUTO  AOORDASO.

In Spanish colonial law. An order emanating from some su- perior tribunal, promulgated in the name and by the authority of the sovereign. Schm. Civil Law, 93.

5e apparatus — Not carried into the 5th edition (1979).

## AUTOCRACY.

The name of an unlim- ited monarchical government. A government at the will of one man, (called an “auto- crat,”) unchecked by constitutional restric- tions or limitations.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Animal Farm, 1945]**

Napoleon the pig concentrates all power, ruling the farm at his unchecked will. (paraphrase) (paraphrase)

Why: Direct match: government at the will of one, unchecked by constitutional restriction.

## AUTOGRAPH.

The handwriting of any one.

5e apparatus — Carried into the 5th edition (1979).

## AUTOMATISM.

In medical Jurispru- dence, this term is applied to actions or conduct of an Individual apparently occur- ring without will, purpose, or reasoned in- tention on his part; a condition sometimes observed in persons who, without being ac- tually insane, suffer from an obscuration of the mental faculties, loss of volition or of memory, or kindred affections. "Ambulatory automatism” describes the pathological im- pulse to purposeless and

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irresponsible wan- derings from place to place often character- istic of patients suffering from loss of mem- ory with dissociation of personality.

5e apparatus — Not carried into the 5th edition (1979).

## AUTO  HOMY.

The political independ- ence of a nation; the right (and' condition) of self-government.

5e apparatus — Not carried into the 5th edition (1979).

## AUTOPSY.

The dissection of a dead body for the purjwse of inquiring into the cause of death. Pub. St. Mass. 1882, p. 1288. Sudduth v. Insurance Co. (C. C.) 106 Fed. 823.

5e apparatus — Not carried into the 5th edition (1979).

## AUTRE.

L. Fr. Another.

— Autre action pendant. Another action pending.— Antre droit. The right of another. — -Autre vie. Another’s life. A person hold- ing an estate for or during the life of another is called a tenant "pur autre vie,” or “pur terms d'autre vie.” Litt. 1 56; 2 Bl. Comm. 120.

5e apparatus — Not carried into the 5th edition (1979).

## AUTREFOIS.

L. Fr. At another time; formerly; before; heretofore.

— Autrefois acquit. In criminal law. For- merly acquitted. The name of a plea in bar to a criminal action, stating that the defendant has been once already indicted and tried for the same alleged offense and has been acquitted. Simco v. State, 9 Tex. App. 348; U. S. v. Gibert, 25 Fed. Cas. 1,294. — Autrefois at- taint. In criminal law. Formerly attainted. A plea that the defendant has already been at- tainted for one felony, and therefore cannot be criminally prosecuted for another. 4 Bl. Comm. 336.— Antrefola convict. Formerly convicted. In criminal law. A plea by a crim- inal in bar to an indictment that he has been formerly convicted of the same identical crime. 4 Bl. Comm. 336 ; 4 Steph. Comm. 404; ■ Sim- co v. State, 9 Tex. App. 348; U. S. v. Olsen g). Y^420 582 ; Shepherd v. People, 25

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V (Double Jeopardy Clause)]**

The common-law pleas of autrefois acquit and autrefois convict are the ancestors of the constitutional bar: 'nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb.'

Why: The body defines the pleas in bar with Blackstone and cases but never names their modern constitutional descendant; the Fifth Amendment clause is the living form of the same rule — genuine illumination connecting the...

**[Scripture] — Scripture**

**[Nahum 1:9, KJV]**

What do ye imagine against the Lord? he will make an utter end: affliction shall not rise up the second

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time.

Why: The entry's operative sense is autrefois acquit — the plea that the defendant was already tried and acquitted for the same offense (no second jeopardy). Nahum 1:9 states the underlying principle: affliction shall not...

## AUXILIARY.

Aiding ; attendant on ; ancillary, (q. «.) As an auxiliary bill in equity, an auxiliary receiver. See Buckley v. Harrison, 10 Mise. Rep. 683, 31 N. Y. Supp. 1001.

5e apparatus — Not carried into the 5th edition (1979).

## AUXILIUM.

In feudal and old English law. Aid; compulsory aid, hence a tax or tribute; a kind of tribute paid by the vas- sal to his lord, being one of the Incidents of the tenure by knight’s service. Spelman.

— Auxilium ad fllium mllitem faciendum et fllium mart tan dam. An ancient writ which was addressed to the sheriff to levy com- pulsorily an aid towards the knighting of a son and the marrying of a daughter of the tenants in capita of the crown.— Auxilium curiae. In old English law. A precept or order of court citing and convening a party, at the suit and request of another, to warrant something.— Auxilium regia. In English, law. The king's aid or money levied for the royal use and the public service, as taxes granted by parliament. — Auxilium vice comiti. An ancient duty paid to sheriffs. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## AVAIL OF MARRIAGE.

In feudal law. The right of marriage, which the lord or guardian in chivalry had of disposing of his infant ward in matrimony. A guardian in socage had also the same right, but not attended with the same advantage. 2 BL Comm. 88,

In Scotch law. A- certain sum due by the heir of a deceased ward vassal, when the heir became of marriageable age. Ersk. Inst. 2, 5, 18.

5e apparatus — Carried into the 5th edition (1979).

## AVAILABLE MEANS.

This phraser among mercantile men, is a term well un- derstood to be1 anything which can readily be converted Into money; but It is not nec- essarily or primarily money Itself. McFad- den v. Leeka, 48. Ohio St 513, 28 N- E. 874>

average:

Benedict v. Huntington, 32 N. Y. 224; Brig- ham v. Tilllnghast, 13 N. Y. 218.

5e apparatus — Not carried into the 5th edition (1979).

## AVAILS.

Profits, or proceeds. This word seems to have been construed only In reference to wills, and In them It means the corpus or proceeds of the estate after the payment of the debts. 1 Amer. & Eng. Ene. Law, 1039. See Allen v. l)e Witt, 3 N. Y. 279; McNaughton v. McNaugliton, 34 N. Y. 201.

5e apparatus — Not carried into the 5th edition (1979).

## AVAL.

In French law. The guaranty of a bill of exchange; so called because usu- ally placed at the foot or bottom (aval) of the bill. Story, Bills, 394, 454.

The act of subscribing one's signature at the bottom of a promissory note or of a bill of exchange; properly an act of suretyship, by the party signing, in favor of the party to whom the note or bill is given. 1 Low. Can. 22a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: The entry defines aval as an act of suretyship on a bill of exchange. Proverbs 11:15 is the classic warning on suretiship itself — the surety shall smart for it — which bears directly on the aval signer's undertaking....

## AVAKTURE.

L. Fr. Chance; hazard; mischance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 9:11, KJV]**

but time and chance happeneth to them all.

Why: The entry defines avakture (Law French) as chance, hazard, mischance. Ecclesiastes 9:11 names time and chance as the governing force behind outcomes — the same concept. Quoted as the verse's closing clause. Qoheleth s...

## AVARIA, AVARXE.

Average; the loss and damage suffered in the course of a navi- gation. Poth. Mar. Louage, 105.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jonah 1:5, KJV]**

Then the mariners were afraid, and cried every man unto his god, and cast forth the wares that were in the ship into the sea, to lighten it of them.

Why: The entry defines avaria/average as loss and damage suffered in navigation. Jonah 1:5 depicts the paradigmatic general-average act: mariners jettisoning cargo (casting wares into the sea) to lighten the ship and save...

## AVERAGE.

A certain quantity of oats paid by a tenant to his landlord as rent, or in lieu of some other duties.

A VENTURE, or ADVENTURE. A

mischance causing the death of a man. as where a person is suddenly drowned or killed by any accident, without felony. Co. Litt. 391.

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5e apparatus — Carried into the 5th edition (1979).

## AVER.

L. Fr. To have.

—Aver et toner. In old conveyancing. To have and to hold.

AVER, v. In pleading. To declare or assert; to set out distinctly and formally; to allege.

In old pleading. To avouch or verify. Litt. | 691; Co. Litt. 3626. To make or prove true; to make good or Justify a plea.

AVER, n. In old English and French. Property; substance, estate, and particular- ly live stock or cattle; hence a working beast; a horse or bullock.

—Aver corn. A rent reserved to religious houses, to be paid by tlieir tenants in corn. —Aver land. In feudal law. Land plowed by the tenant for the proper use of the lord of the soil.— Aver penny. Money paid towards the king’s averages or carriages, and so to be freed thereof.— Aver silver. A custom or rent formerly so called.

5e apparatus — Not carried into the 5th edition (1979).

## AVERAGE.

A medium, a mean propor- tion.

In old English law. A service by horse or carriage, anciently due by a tenant to his

lord. Cowell. A labor or service performed with working cattle, horses, or oxen, or with wagons and carriages. Spelman.

" Stubble, or remainder of straw and grass left in corn-fields after harvest. In Kent it is called “gratte and in other parts “ rough ings.”

In maritime law. Loss or damage acci- dentally happening to a vessel or to its cargo during a voyage.

Also a small duty paid to masters of ships, when goods are sent in another man's ship, for their care of the goods, over and above the freight.

In marine insurance. Where loss or damage occurs to a vessel or its cargo at sea, average Is the adjustment and appor- tionment of such loss between the owner, the freight, and the cargo, in proportion to their respective interests and losses, in order that one may not sufTer the whole loss, but each contribute ratably. Coster v. Insuranci Co.,

2 Wash. C. C. 51, 6 Fed. Cos. 611; Insur- ance Co. v. Bland, 9 Dana (Ky.) 147 ; Wkit- teridge v. Norris, 6 Mass. 125; Nickerson v. Tyson, 8 Mass. 467; Insurance Co. v. Jones, 2 Bin. (Pa.) 552. It is of the follow- ing kinds:

General average (also called “gross") con- sists of expense purposely Incurred, sacrifice made, or damage sustained for the common safety of the vessel, freight, and cargo, or the two of them, at risk, and is to be con- tributed for by the several Interests in the proportion of their respective values exposed to the common danger, and ultimately sur- viving. including the amount of expense, sacrifice, or damage so incurred in the con- tributory value. 2 Phil. Ins. § 1269 et seq. 2 Steph. Comm. 179; Padelford vv Board- man, 4 Mass.

548.

Particular average is a loss happening to the ship, freight, or cargo which is not to be shared by contribution among all those in- terested, but must lie borne by the owner of the subject to which it occurs. It is thus called iu contradistinction to general aver- age. Bargett v. Insurance Co., 3 Bosw. (N. Y.) 395.

Petty average. In maritime law. A term used to denote such charges and disburse- ments as, according to occurrences and the custom of every place, the master necessari- ly furnishes for the benefit of the ship and cargo, either at the place of loading or un- loading, or on the voyage: such as the hire of a pilot for conducting a vessel from one place to another, towage, light money, bea- conage, anchorage, bridge toll, quarantine and such like. Fork, Ins. 100. The particulars belonging to this head depend, however, en- tirely upon usage. Abb. Ship. 404.

Simple average. Particular average, (q.v.)

—Average charge*. “Average charges for toll and transportation” are understood to mean, and do mean, charges made at a mean rate, ob- tained by dividing the entire receipts for toll

and transportation by the whole quantity of tonnage carried, reduced to a common standard of tons moved one mile. Hersh v. Railway Co., 74 Pa. 100. — Average prices. Such as are computed on all the prices of any articles sold within a certain period or district. — Gross average. In maritime law. A contribution made by the owners of a ship, its cargo, and the freight, towards the loss sustained by the volun- tary and necessary sacrifice of property for the common safety, in proportion to their respective interests. More commonly called "general aver- age," (q. t>.) See 3 Kent, Comm. 232 ; 2 Steph. Comm. 179. Wilson v. Cross, 33 Cal. 69.

AVEBXA., In old English law. This term was applied to working cattle, such as horses, oxen. etc.

— Averia carraoc. Beasts of the plow.— Averiia eaptis in withernam. A writ granted to one whose cattle were unlawfully dis- trained by another and driven out of the coun- ty in which they were taken, so that they could not be replevied by the sheriff. Reg. Orig. 82.

5e apparatus — Carried into the 5th edition (1979).

## AVERMENT.

In pleading. A positive statement of facts, in opposition to argument or inference. 1 Chit. Pi. 320.

In old pleading. An offer to prove a plea, or pleading. The concluding part of a plea, replication, or other pleading, contain- ing new affirmative matter, by which the party offers or declares himself “ready to verify .”

5e apparatus — Not carried into the 5th edition (1979).

## ATERRARE.

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In feudal law. A duty re- quired from some customary tenants, to car- ry goods in a wagon or upon loaded horses.

5e apparatus — Not carried into the 5th edition (1979).

## AVER8IO.

In the civil law. An avert- ing or turning away. A term applied to a species of sale in gross or bulk. Letting a house altogether, instead of lu chambers. 4 Kent, Comm. 517.

— Averaio pericnli. A turning away of peril. Used of n contract of insurance. 3 Kent, Comm. 263.

5e apparatus — Not carried into the 5th edition (1979).

## AVERVM.

Goods, property, substance; a beast of burden. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## A VET.

A term used in the Scotch law, signifying to abet or assist.

5e apparatus — Not carried into the 5th edition (1979).

## AVIA.

In the civil law. A grandmother. Inst. 3, 6, 3.

5e apparatus — Not carried into the 5th edition (1979).

## A VIATICUS.

In the civil law. A grand- son.

5e apparatus — Not carried into the 5th edition (1979).

## AVIZANDUM.

In Scotch law. To make arizandum with a process is to take it from the public court to the private consideratlou of the Judge. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## AVOCAT.

Fr. Advocate; an advocate.

5e apparatus — Carried into the 5th edition (1979).

## AVOID.

To annul; cancel; make void; to destroy the efficacy of anything.

5e apparatus — Carried into the 5th edition (1979).

## AVOIDANCE.

A making void, or of no effect; annulling, cancelling; escaping or evading.

In English ecclesiastical law. The term describes the condition of a benefice when it has no incumbent.

In parliamentary language, avoidance of a decision signifies evading or superseding a question, or escaping the coming to a de- cision upon a pending question. Holthouse.

In pleading. The allegation or statement of new matter, in opposition to a former pleading, which, admitting the facts alleged in such former pleading, shows cause why they should not have their ordinary legal effect. Mahaiwe Bunk v. Douglass, 31 Conn. 175; Cooper v. Tappau, 9 Wis. 366; Mead- ows v. Insurance Co., 62 Iowa, 387, 17 N.

W. 600; Url v. Hlrsch (C. C.) 123 Fed. 570.

5e apparatus — Carried into the 5th edition (1979).

## AVOIRDUPOIS.

The name of a system of weights (sixteen ounces to the pound) used iu weighing articles other than medi- cines, metals, and precious stones.

5e apparatus — Not carried into the 5th edition (1979).

## AVOUCHER.

The calling upon a war- rantor of lands to fulfill his undertakiug.

AVOUfi. In French law. A barrister, advocate, attorney. An officer charged with representing and defending parties before the tribunal to which he is attached. Du- verger.

5e apparatus — Not carried into the 5th edition (1979).

## AVOW.

Iu pleading. To acknowledge and Justify an act done.

To make an avowry. For example, when replevin is brought for a thing distrained, and the party taking claims that lie had a right to make the distress, he is sA id to avow. Newell Mill Co. v. Muxlow, 115 N.

Y. 170, 21 N. E. 1048.

5e apparatus — Not carried into the 5th edition (1979).

## AVOWANT.

One who makes an avowry,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## AVOWEE.

In ecclesiastical law. An advocate of a church benefice.

5e apparatus — Not carried into the 5th edition (1979).

## AVOWRY.

A pleading in the action of replevin, by which the defendant avoirs, that Is. acknowledges, the taking of the dis- tress or property complained of, where he took It in his own right, and sets forth the reason of It : as for rent In arrenr, damage done, etc. 3 Bl. Comm. 149; 1 Tidd. IT. 645. Brown v. Blssett, 21 N. J. Law, 274 ; Hill v. Miller. 5 Serg. & R. (Pa.) 357.

Avowry is the setting forth, as in a declara- tion, the natnre and merits -of the defendant's case, showing that the distress taken by him was lawful, which must be done with such suf- ficient authority as will entitle him to a retor- no habendo. Hill v. Stocking, 6 Hill (N. Y.) 284.

An avowry must be distinguished from a jus- tification. The former species of plea admits the plaintiff’s ownership of the property, but alleges a right in the defendant sufficient to warrant him in taking the property and which still subsists. A justification, on the other hand,

denies that the plaintiff had the right of prop- erty or possession in the subject-matter,, alleg- ing it to have been in the defendant or a third person, or Avers a right sufficient to warrant the defendant in taking it, although such right has pot continued in force to the time of making answer.

5e apparatus — Not carried into the 5th edition (1979).

## AVOWTERER.

In English law. An adulterer with whom a married woman con- tinues in adultery. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 20:10, KJV]**

And the man that committeth adultery with another man's wife, even he that committeth adultery with his neighbour's wife, the adulterer and the adulteress shall surely be put to death.

Why: The entry defines avowterer as the adulterer with whom a married woman continues in adultery. Leviticus 20:10 names the adulterer (and adulteress) directly and states the legal consequence. The verse stands inside the...

## AVOWTRY.

In old English law. Adul- tery. Termes de la Ley.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The entry defines avowtry as adultery in old English law. Exodus 20:14 is the Decalogue's direct prohibition of the act — God's own speech ('And God spake all these words, saying'), hence deity_verbatim.

## AVULSION.

The removal of a consid- erable quantity of soil from the land of one man, and its deposit upon or annexation to the land of, another, suddenly and by the perceptible action of water. 2 Washb. Real Prop. 452.

The property of the part thus separated continues In the original proprietor, in which respect avulsion differs from alluvion, by which an addition Is insensibly made to a property by the gradual washing down of the river, and which addition becomes the property of the owner of the lands to which the addition is made. Wharton. And see Rees v. McDaniel, 115

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Mo. 145, 21 S. W: 013; Nebraska v. Iowa, 143 U. S. 359, 12 Sup. Ct. 390, 36 L. Ed. 180 ; Bouvier v. Strieklett, 40 Neb. 792, 59 N. W. 550; Chi- cago v. Ward, 109 111. 392, 48 N. E. 927, 38

L. R. A. 849, 61 Am. St. Rep. 185.

5e apparatus — Not carried into the 5th edition (1979).

## AVUNCULUS.

In the civil law. A moth- er's brother. 2 Bl. Comm. 230. Avunculus magnus, a great-uncle. Avunculus major, a great-grandmother's brother. Avunculus maxim us. a great-great-grandmother's broth- er. See Dig. 38, 10, 10; Inst. 3, 6, 2.

5e apparatus — Not carried into the 5th edition (1979).

## AVUS.

In the civil law. A grandfather Inst. 3, 6. 1.

5e apparatus — Not carried into the 5th edition (1979).

## AWAIT.

A term used In old statutes, signifying a lying in wait, or waylaying.

AWARD, v. To grant, concede, adjudge to. Thus, a jury awards damages ; the court awards an injunction. Starkey v. Minneapolis, 19 Minn. '200 (Gil. 160).

AWARD, n. The decision or determina- tion rendered by arbitrators or commission- ers, or other private or extrajudicial decid- ers, upon a controversy submitted to them ; also the writing or document embodying such decision. Ilalnon v. Ilalnon, 55 Vt. 321 ; Henderson v. Beaton, 52 Tex. 43 ; Pe- ters v. Peirce, 8 Mass. 398; Benjamin v. U. S., 29 Ct. Cl. 417.

5e apparatus — Carried into the 5th edition (1979).

## AWAY-GOING CROP.

A crop sown before the expiration of a tenancy, which cannot ripen until after its expiration, to which, however, the tenant is entitled. Broom, Max. 412.

5e apparatus — Carried into the 5th edition (1979).

## AWH.

In old English statutes. A meas- ure of wine, or vessel containing forty gal- lons.

5e apparatus — Not carried into the 5th edition (1979).

## AXIOM.

In logic. A self-evident truth; an Indisputable truth.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: classical — Euclid, Elements, c. 300 BCE]**

Geometry built from self-evident starting truths — common notions and postulates from which all else is demonstrated. (paraphrase) (paraphrase)

Why: The classical source of the axiomatic method; the entry's 'self-evident truth' is Euclid's common notion.

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**AYANT CAUSE.**

In French law. This term signifies one to whom a right has been assigned, either by will, gift, sale, exchange, or the like; an assignee. An ayant cause differs from an heir who acquires the right by inheritance. 8 Toullier, n. 245. The term is used in Louisiana.

5e apparatus — Carried into the 5th edition (1979).

**AYLE.**

See Aiel.

5e apparatus — Not carried into the 5th edition (1979).

**AYRE.**

In old Scotch law. Eyre; a cir- cuit, eyre, or iter.

5e apparatus — Not carried into the 5th edition (1979).

**AYUNTAMIENTO.**

In Spanish law. A congress of persons; the municipal council of a city or town. 1 White, Coll. 416 ; Fried- man v. Goodwin, 9 Fed. Cas. 818.

5e apparatus — Not carried into the 5th edition (1979).

**AZURE.**

A term used in heraldry, sig- nifying blue.

Ill

Br

B

5e apparatus — Not carried into the 5th edition (1979).

# B

**B.**

The second letter of the English al- phabet ; Is used to denote the second of a series of pages, notes, etc. ; the subsequent letters, the third and following numbers.

5e apparatus — Not carried into the 5th edition (1979).

**B. C.**

An abbreviation for ‘‘before Christ," "ball court,” ‘‘bankruptcy cases,” and ‘‘British Columbia.”

5e apparatus — Not carried into the 5th edition (1979).

**B. E.**

An abbreviation for “Baron of the Court of Exchequer.”

5e apparatus — Not carried into the 5th edition (1979).

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## B. F.

An abbreviation for bonum fac- tum, a good or proper act, deed, or decree; stgnifles “approved.”

5e apparatus — Not carried into the 5th edition (1979).

## B. B.

An abbreviation for Bancus Regis, (King's Bench,) or Bancus Regina, (Queen’s Bench.) It Is frequently found In the old books as a designation of that court. In more recent usage, the initial letters of the English names are ordinarily employed, (. e., K. B. or Q. B.

B. 8. Bancus Superior, that Is, upper bench.

“BABY ACT.” A plea of Infancy, inter- posed for the purpose of defeating an action upon a contract made while the person was a minor, is vulgarly called “pleading the baby act.” By extension, the term is ap- plied to a plea of the statute of limitations.

BACHEXiEBXA. In old records. Com- monalty or yeomanry, In contradistinction to baronage.

5e apparatus — Not carried into the 5th edition (1979).

## BACHELOR.

The holder of the first or lowest degree conferred by a college or uni- versity, e. g., a bachelor of arts, bachelor of law, etc.

A kind of Inferior knight; an esquire.

A man who has never been married.

BACK, v. To indorse; to sign on the back; to sign generally by way of accept- ance or approval. Where a warrant Issued in one county is presented to a magistrate of another county and he signs it for the purpose of making it executory in his coun- ty, he is said to “back” it. 4 Bl. Comm. 291. So an indorser of a note or bill is col- loquially said to “back” it. Reabury v. Hnngerford, 2 Hill (X. Y.) 80.

BACK, adv. To the rear ; backward ; in a reverse direction. Also, in arrear.

— Back lands. A term of no very definite im- port. but generally signifying lands lying back from (not contiguous to) a highway or a water- course. See Ryerss v. Wheeler, 22 Wend. (N. Y.) 150. — Back taxes. Those assessed for a previous year or years and remaining due and unpaid from the original tax debtor. M. E. Church v. New Orleans, 107 La. 611. 32 South. 101 ; Gaines v. Galbraeth, 14 Lea (Tenn.) 363. —Backwater. Water in a stream which, in Consequence of some, dam or obstruction below,

is detained or checked in its course, or flows back. Hodges v. Raymond. 9 Mass. 316 ; Cham- bers v. Kyle, 87 Ind. 85. Water caused to flow backward from a steam-vessel by Teason of the action of its wheels or screw.

5e apparatus — Carried into the 5th edition (1979).

## BACKBEAR.

In forest law. Carrying on the back. One of the cases in which an offender against vert and

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venison might be arrested, as being taken with the mainour, or manner, or found carrying a deer off on ,his back. Mamvood; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BACKBEBEND.

Sax. Bearing upon the back or about the person. Applied to a thief taken with the stolen property In his immediate possession. Bract. 1, 3, tr. 2, c. 32. Used with handhabend, having in the hand.

5e apparatus — Not carried into the 5th edition (1979).

## BACKBOND.

In Scotch law. A deed attaching a qualification or condition to the terms of a conveyance or other instrument. This deed Is used when particular circum- stances render It necessary to express in a separate form the limitations or qualifica- tions of a right. Bell. The instrument Is equivalent to a declaration of trust in Eng- lish conveyancing.

5e apparatus — Carried into the 5th edition (1979).

## BACKING.

Indorsement ; indorsement by a magistrate.

5e apparatus — Carried into the 5th edition (1979).

## BACKING  A WABBANT.

See Back.

5e apparatus — Not carried into the 5th edition (1979).

## BACKSIDE.

In English law. A term formerly used in conveyances and also in pleading; it imports a yard at the back part of or behind a house, and belonging thereto.

5e apparatus — Carried into the 5th edition (1979).

## BACKWARDATION.

In the language of the stock exchange, this term signifies a consideration paid’ for delay In the delivery of stock contracted for, when the price is lower for time than for cash. Dos Passos, Stock-Brok. 270.

5e apparatus — Not carried into the 5th edition (1979).

## BACKWARDS.

In a policy of marine insurance, the phrase “forwards and back- wards at sea” means from port to port in the course of the voyage, and not merely from one terminus to the other and back. 1 Taunt. 475.

BACtnUS. A rod, staff, or wand, used in old English practice in making livery of seisin where no building stood on the land, (Bract. 40;) a stick or wand, by the erection of which on the land involved In a real ac- tion the defendant was summoned to put In his appearance; this was called “ baculus nuntiatorius." 3 Bl. Comm. 279.

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5e apparatus — Carried into the 5th edition (1979).

## BAD.

Substantially defective ; inapt ; not good. The technical word for unsound- ness in pleading.

—Bad debt. Generally speaking, one which is uncollectible. But technically, by statute in

lome states, the word may have a more precise meaning. In Louisiana, bad debts nre those which have been prescribed against (barred by limitations) and those due by bankrupts who have not surrendered any property to Is- divided among their creditors. Civ. Code I -a. 1000, art. 1048. In North Dakota, as applied to the man- agement of banking associations, the term means all debts due to the association on which the in- terest is past due and unpaid for a period of six months, unless the same are well secured and in process of collection. Rev. Codes N.

D. 1899, jj 3240.— Bad faith. The opposite of “good faith,” generally implying or involving ac- tual or constructive fraud, or a design to mis- lead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obliga- tion, not prompted by an honest mistake as to one's rights or duties, but by some interested or sinister motive. Ililgenberg v. Northup. 134 Ind. 92. 33 N. EX 780; Morton v. Immigration Ass’n, 79 Ala. 017 ; Coleman v. Rillings, S9 111. 191 ; Lewis v. Holmes, 109 La. 1030, 34 South. 00. 01 L. R. A. 274; Harris v. Harris, 70 Pa. 174; Penn Mut. L. Ins. Co. v. Trust Co., 73 Fed. 053, 19 C. C. A. 310, 38 L. It. A. 33, 70; Insurance Co. v. Edwards, 74 Ga. 230.— Bad title. One which conveys no property to the purchaser of the estate; one which is so radical- ly defective that it is not marketable, and hence such that a purchaser cannot be legally com- pelled to accept it. Heller v. Cohen, 15 Misc. Rep. 378, 30 N. Y. Supp. 068.

5e apparatus — Carried into the 5th edition (1979).

## BADGE.

A mark or cognizance worn to show the relation of the wearer to any per- son or thing; the token of anything; a dis- tinctive mark of office or service.

5e apparatus — Carried into the 5th edition (1979).

## BADGE OF FRAUD.

A term used rel- atively to the law of fraudulent convey- ances made to hinder and defraud creditors. It is defined as a fact tending to throw sus- picion upon a transaction, and calling for an explanation. Bump. Errand. Conv. 31 ; Gould v. Sanders, 69 Mich. 5. 37 N. W. 37; Bryant v. Kelton, 1 Tex. 420; Goshorn v. Snodgrass. 17 W. Va. 70S; Kirkley v. Lacey, 7 Houst (Del.) 213, 30 Atl. 994; Phelps v. Samson, 113 Iowa, 145. 84 N. IV. 1051.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Twyne's Case, 3 Co. Rep. 80b (Star Chamber 1601)]**

The very phrase 'badges of fraud' comes from Twyne's Case, where the Star Chamber enumerated the marks of a conveyance made to hinder and defraud creditors: secrecy, the donor's continued possession, pendency of suit, and trust between the parties.

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Why: The body defines the term through treatises and 19th-century cases but never names its origin; Twyne's Case is the genuine fountainhead of the badge-of-fraud doctrine — illumination of the entry's pedigree, not a rest…

## BADGER.

In old English law. One who made a practice of buying corn or vict- uals in one place, and carrying them to an- other to sell and make profit by them.

5e apparatus — Carried into the 5th edition (1979).

## BAG.

A sack or satchel. A certain and customary quantity of goods and merchan- dise in a sack. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## BAGA.

In English law. A bag or purse. Thus there is the petty-hag-ofHce in the com- mon-law Jurisdiction of the court of chan- cery, because all original writs relating to the business of the crown were formerly kept in a little sack or bag, in part'd bagd. 1 Madd. Ch. 4.

5e apparatus — Not carried into the 5th edition (1979).

## BAGGAGE.

In the law of carriers. This term comprises such articles of per- sonal convenience or necessity ns are usual- ly carried by passengers for their [tersonal use, and not merchandise or other valu- ables, although carried In the trunks of pas- sengers, which are not designed for any such

use, but for other purposes, such as a sale and the like. The term Includes whatever the passenger takes with him for his per- sonal use or convenience according to the habits or wants of the particular class to which he belongs, either with reference to the immediate necessities or ultimate pur- pose of the journey. Macrow v. Railway Co.. L. R. 6 Q. B. 012; Bomar v. Maxwell. 9 Humph. (Tenn.) 021, 51 Am. Dec. 682; Railroad Co. v. Collins, 56 111. 217 ; Haw- kins v. Hoffman, 6 Hill (N. Y.) 590, 41 Am. Dec. 767 ; Mauritz v. Railroad Co. <C. C.) 23 Fed. 771 ; Dexter v. Railroad Co.. 42 N.

Y. 320, 1 Am. Rep. 527 ; Story, Bailm. § 499.

5e apparatus — Not carried into the 5th edition (1979).

## BAHADUM.

A chest or coffer. Fleta.

BAIL, v. To procure the release of a person from legal custody, by undertaking that he shall appear at the time and place designated and submit himself to the juris diction and judgment of the court.

To set at liberty a person arrested or Im- prisoned, on security being taken for his ap- pearance on a day and a place certain, which security is called “bail,” because the party arrested or imprisoned is delivered in- to the hands of those who bind themselves for his forthcoming, (that is, become bail for his due appearance when required,) in or- der that he

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may be safely protected from prison. Wharton. Stafford v. State, 10 Tex. App. 49.

BAIL, a. la practice. The sureties who procure the release of a person under ar- rest. by becoming responsible for his appear- ance at the time and place designated. Those persons who become sureties for the appearance of the defendant in court.

Upon those contracts of indemnity which are taken in legal proceedings as security for the performance of an obligation imposed or de- clared by the tribunals, and known as under- takings or recognizances, the sureties are called “bail.” Civ. Code Cal. § 2780.

The taking of bail consists in the acceptance by a competent court, magistrate, or officer, of sufficient bail for the appearance of the de- fendant according to the legal effect of his un- dertaking, or for the payment to the slate of a certain specified sum if he does not' appear. Code Ala. 1880. § 4407.

— Ball absolute. Sureties whose liability is conditioned upon the failure of the principal to duly account for money coming to his hands as administrator, guardian, etc. — Bail-bond. A bond executed by a defendant who has been arrested, together with other persons as sure- ties. naming the sheriff, constable, or marshal as obligee, in a penal sum proportioned to the damages claimed or penalty denounced, condi- tioned that the defendant shall duly appear to answer to the legal process in the officer’s hands, or shall cause special bail to be put in, as the case may be. — Bail common. A ficti- tious proceeding, intended only to express the appearance of a defendant, in cases where spe- cial bail is not required. It is put in in the same form as special bail, but the sureties are merely nominal or imaginary persons, as John Doe and Richard Roe. 3 Bl. Comm. 287.— Ball eonrt. In English law and practice. An auxiliary court of the court of queen’s bench at Westminster, wherein points connected more

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particularly with pleading and practice are ar- g-ed and determined. Holthouse.— Bail in er- ror. That given by a defendant who intends to bring a writ of error on the judgment and de- sires a stay of execution in the mean time.— Bail piece. A format entry or memorandum of the recognizance or undertaking of special bail in civil actions, which, after being signed and acknowledged by the bail before the proper officer, is filed in the court in which the action is pending. 3 Bl. Comm. 291: 1 Tidd, Pr. 250 ; Worthen v. Prescott, 00 Vt. 08, 11 Atl. 090; Nicolls v. Ingersoll, 7 Johns. (N. Y.) 154. — Bail to the action or bail above. Special bail, ( q . v.) — Bail to the sheriff, or bail below. In practice. Persons who undertake that a defendant arrested upon mesne process in a civil action shall duly appear to answer the plaintiff; such undertaking being in the form of a bond given to the sheriff, termed a “bail- bond,” ( q . v.) 3 Bl. Comm. 290; 1 Tidd. Pr. 221.— Civil bail. That taken in civil actions. —Special bail. In practice. Persons who undertake jointly and severally in behalf of a defendant arrested on mesne process in a civil action that, if he be condemned in the action, he shall pay the costs and condemnation, (that is, the amount which may be recovered against him.) or render himself a prisoner, or that they will pay it for him. 3 Bl.

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Comm. 291 ; 1 Tidd, Pr. 245. — Straw bail. Nominal or worthless bail. Irresponsible persons, or men of no prop- erty, who make a practice of going bail for any one who will pay them a fee therefor.

BAH* Fr. In French and Canadian law. A lease of lands.

—Bail A cheptel. A contract by which one of the parties gives to the other cattle to keep, feed, and care for. the borrower receiving half the profit of increase, and bearing half the loss. Duvereer. — Bail A ferae. A contract of let- ting lands.— Bail A longues annfios. A lease for more than nine years ; the same as bail emphyteotique (see infra) or an emphyteu- tic lease.— Ball A loyer. A contract of letting houses. — Bail A rente. A contract partaking of the nature of the contract of sale, and that of the contract of lease : it is translative of property, and the rent is essentially redeem- able. Clark’s Heirs v. Christ’s Church. 4 La. 2815: Poth. Bail it Itente, 1, .3.— Bail empbv- teotique. An emphyteutic lease ; a lease for a term of years with a right to prolong indef- initely; practically equivalent to an alienation.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII (Excessive Bail Clause)]**

The constitutional limit on the practice the entry describes: 'Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.'

Why: The body exhaustively catalogues the forms of bail without naming the constitutional bar that constrains them all; the Eighth Amendment clause is the verbatim higher authority behind the entire entry — genuine illumin… [re-homed from 'BAIL' to 'BAHADUM' (OCR headword / parser-merge artifact)]

## BAILABLE.

Capable of being bailed ; admitting of bail ; authorizing or requiring ball. A bailable action Is one in which the defendant cannot be released from arrest except on furnishing ball. Bailable process is such as requires the officer to take bail, after arresting the defendant. A bailable off ante Is one for which the prisoner may be admitted to ball.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Martin Brest, Midnight Run, 1988]**

A bounty hunter is hired to retrieve a bail-jumper who fled after posting bail. (paraphrase) (paraphrase)

Why: The plot turns entirely on bail, its posting, and its forfeiture — a genuine film instance of the bailable process.

## BAILEE.

In the law of contracts. One to whom goods are bailed : the party to whom personal property Is delivered under a contract of bailment. Phelps v. People, 72 N. Y. 357 : McGee v. French, 49 S. C. 454, 27 S. E. 487 ; Bergman v. People, 177 111. 244, 52 N. E. 363; Com. v. Chathams, 50 Pa. 181, 88 Am. Dec. 539.

5e apparatus — Carried into the 5th edition (1979).

## BAILIE.

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In the Scotch law. A bailie is (1) a magistrate having Inferior criminal jurisdiction, similar to that of an alderman, (ff. v.;) (2) an officer appointed to confer in- Bl.Law Dict.(2d Ed.)— 8

feoffment, (r/. v.;) a bailiff, (q. v.;) a server of writs. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## BAILIFF.

In a general sense, a per- son to whom some authority, care, guardian- ship, or Jurisdiction Is delivered, committed, or intrusted ; one who is deputed or ap- pointed to take charge of another's affairs; an overseer or superintendent ; a keeper, protector, or guardian; a steward. Sj>el- man.

A sheriff's officer or deputy. 1 Bl. Comm. 344.

A magistrate, who formerly administered Justice in the parliaments or courts of France, answering to the English sheriffs as mentioned by Braeton.

In the action of account render. A

person who has by delivery the custody and administration of lands or goods for the benefit, of the owner or bailor, and is liable to render an account thereof. Co. Lltt. 271 ; Story, Eg. Jur. S 446; West v. Wever. 46 Ohio St. (56, 18 N. E. 537, 15 Am. St. Kep. 552.

A bailiff Is defined to be "a servant that has the administration and charge of lands, goods, and chattels, to make the best benefit for the owner, against whom an action of account lies, for the profits which he has raised or made, or might by his industry or care have raised or made." Barnum v. London, 25 Conn. 149.

— Bailiff-errant. A bailiff's deputy.— Bail- iffs of franchises. In English law. Officers who perform the duties of sheriffs within liber- ties or privileged jurisdictions, in which form- erly the king's writ could not be executed by tbe sheriff. Spelman. — Bailiffs of hundreds. In English law. Officers appointed over hun- dreds, by the sheriffs, to collect fines therein, and summon juries; to attend the judges and justices at the assises and quarter sessions; and also to execute writs and process in the several hundreds. 1 Bl. Comm. 345 ; 3 Steph. Comm. 29; Bract, fol. 1 16.— Bailiff s of ma- nors. In English law. Stewards or agents appointed by the lord (generally by an author- ity under seal) to superintend the manor, col- lect fines, and quit rents, inspect the buildings, order repairs, cut down trees, impound cattle trespassing, take an account of wastes, spoils, and misdemeanors in the woods and demesne lands, and do other acts for the lord's interest. Cowell.— High bailiff. An officer attached to an English county court. His duties are to at- tend the court when sitting; to serve summon- ses ; and to execute orders, warrants, writs, etc. St. 9 & 10 Viet. c. 95. $ 33 : Poll. C. C. Pr. 16. He also has similar duties under the bankruptcy jurisdiction of the county courts. — Special bailiff. A deputy sheriff, appointed at tbe request of a party to a suit, for the special purpose of serving or executing some writ or process in such suit.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 12:42, KJV]**

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Who then is that faithful and wise steward, whom his lord shall make ruler over his household, to give them their portion of meat in due season?

Why: The entry's general sense defines bailiff as one to whom care or jurisdiction is delivered — a steward deputed to take charge of another's affairs. Luke 12:42 pictures the faithful and wise steward set over the househ...

## BAILIVIA.

In old law. A bailiff’s ju- risdiction, a bailiwick; the same as bailiunu Spelman. See Bailiwick.

In old English law. A liberty, or ex- clusive jurisdiction, which was exempted from the sheriff of the county, and over which the lord of the liberty appointed a bailiff with such powers within his precinct

as an under-sheriff exercised under the sher- iff of the county. Whisbaw.

5e apparatus — Not carried into the 5th edition (1979).

## BAILIWICK.

The territorial jurisdic- tion of a sheriff or bailiff. 1 Bl. Comm. 344. Greenup v. Bacon. 1 T. B. Mon. (Ky.) 108.

5e apparatus — Not carried into the 5th edition (1979).

## BAILLEER BE PONDS.

' In Canadian law. The unpaid vendor' of real estate.

BAILLL In old French law. One to whom judicial authority was assigned or de- livered by a superior.

5e apparatus — Not carried into the 5th edition (1979).

## BAILMENT.

A delivery of goods or per- sonal property, by one person to another. In trust for the execution of a special object upon or in relation to such goods, beneficial either to the bailor or bailee or both, and upon a contract, express or Implied, to per- form the trust and carry out such object, and thereupon either to redeliver the goods to the bailor or otherwise dispose of the same in conformity with the purpose of the trust Watson v. State, 70 Ala. 13, 45 Am. Rep. 70; Com. v. Maher, 11 Phlla. (Pa.) 425: McCaf- frey v. Knapp, 74 111. App. 80: Krause v. Com., 93 Pa. 418, 39 Am. Rep. 702 ; Fulcher v. State, 32 Tex. Cr. R. 021, 25 S. W. 025. See Code Ga. 1882, § 2058.

A delivery of goods in trust upon a contract, expressed or implied, that the trust shall be faithfully executed on the part of the bailee. 2 Bl. Comm. 455.

Bailment, from the French baiUer, to deliver, is a delivery of goods for some purpose, upon a contract, express or implied, that, after the

urpose has been fulfilled, they shall be redevered to the bailor, or otherwise dealt with, according to his directions, or (ns the case may be) kept till he reclaims them. 2 Steph. Comm. 80.

A delivery of goods in trust upon a contract, expressed or implied, that the trust shall be duly executed, and the goods restored by the bailee as soon as the purposes of the

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bailment shall be answered. 2 Kent, Comm. 559.

Bailment is a delivery of a thing in trust for some special object or purpose, and upon a contract, express or implied, to conform to the object or purpose of the trust. Story, Bailm. 3.

A delivery of goods in trust on a contract, either expressed or implied, that the trust shall be duly executed, and the goods redelivered as soon as the time or use for which they were hailed shall have elapsed or be performed. Jones. Bailm. 117.

Bailment is a word of French origin, signif- icant of the curtailed transfer, the delivery or mere handing over, which is appropriate to the transaction. Schouler. Pers. Prop. 695.

The test of a bailment is that the identical thing is to be returned; if another thing of equal value is to be returned, the transaction is a sale. Marsh v. Titus, 0 Thomp. A C. (N. Y.) 29; Sturm v. Boker. 150 U. S. 312, 14 Sup. Ct. 99, 37 L. Ed. 1093.

Classification, sir William Jones has divided bailments into five sorts, namely: Deposltum, or deposit ; mandatum, or com- mission without recompense; commodatum, or loan for use without pay : pignori acccp- tum, or pawn ; locatum, or hiring, which is always with reward. This last is subdivided Into locatio rei, or hiring, by which the hirer gains a temporary use of the thing; locatio operis facicndi, when something is to be done to the thing delivered; locatio operU mcrcium vehendarum. when the thing is merely to be carried from one place to an- other. Jones, Bailm. 36.

Lord Holt divided bailments thus:

(1) Depositum, or a naked bailment of goods, to be kept for the use of the bailor.

(2) Commodatum. Where goods or chattels that are useful are lent to the bailee groii #, to be used by him.

(3) Locatio rei. Where goods are lent to the bailee to be used by him for hire.

(4) Vadium. Pawn or pledge.

(5) Locatio operis facicndi. Where goods are delivered to be carried, or something is to be done alxmt them, for a reward to be paid to the bailee.

(6) ilandatum. A delivery of goods to some- body who is to carry them, or do something about them, gratis. 2 Ld. Raym. 909.

Another division, suggested by Bouvier, is as follows: First, those bailments which are for

the benefit of the bailor, or of some person whom lie represents; second , those for the bene- fit of the bailee, or some person represented by him ; third, those which are for the benefit of both parties.

— Bailment for hire. A contract in which the bailor agrees to pay an adequate recom- pense for the safe-keeping of the thing intrust- ed to the custody of the bailee, and tbe bailee agrees to keep it and restore it on the request of the bailor, in the same condition substantial- ly as he received it. excepting injury or loss from causes for which he is not responsible. Arent v. Squire, 1 Paly (N. Y.) 356.— Gratui- tous bailment. Another name for a

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depoel- tura or naked bailment, which is made only for the benefit of the bailor and is not a source of profit to the bailee. Foster v. Essex Bank. 17 Mass. 499, 9 Am. Dec. 308. — Lucrative bailment. One which is undertaken upon a consideration and for which a payment or rec- ompense is to be made to the bailee, or from which he is to derive some advantage. Prince v. Alabama State Fair, 106 Ala. 340, 17 South. 449, 28 L. R. A. 716.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 25:14, KJV]**

For the kingdom of heaven is as a man travelling into a far country, who called his own servants, and delivered unto them his goods.

Why: The entry defines bailment as delivery of goods by one person to another in trust for a special object. The parable of the talents opens with exactly that: the master delivering his goods unto his servants in trust. J...

**[Humanity] — Humanity / Fiction & Film**

**[J.R.R. Tolkien, The Lord of the Rings, 1954–55]**

The Ring is delivered into Frodo's keeping in trust, for the special object of its destruction — to be disposed of per the trust, never for his own. (paraphrase) (paraphrase)

Why: Analogical but genuine: a delivery of a thing in trust for a special object, with a duty to carry out that object — the doctrinal shape of bailment. Reasoning flags the analogy plainly.

## BAILOR.

Tbe party who bails or deliv- ers goods to nnother, in the contract of bail- ment. McGee v. French, 49 S. C. 454, 27 S.

E. 487.

5e apparatus — Not carried into the 5th edition (1979).

## B AIR-MAN.

In old Scotch law. A poor Insolvent debtor, left bare and naked, who was obliged to swear in court that he was not worth more than five shillings and five- pence.

5e apparatus — Not carried into the 5th edition (1979).

## BATONS.

In Scotch law. A known term, used to denote one's whole issue. Ersk. Inst. 3, 8, 48. But it is sometimes used in a more limited sense. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## BATON’S PART.

In Scotch law. Chil- dren’s part; a third part of the defunct’s free movables, debts deducted, if the wife survive, and a half if there be no relict.

5e apparatus — Not carried into the 5th edition (1979).

## BATTING ANIMALS.

In English law. Procuring them to be worried by dogs. Pun- ishable on summary conviction, under 12 A 13 Vlct c. 92, | 3.

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5e apparatus — Not carried into the 5th edition (1979).

## BAUENA.

A large fish, called by Black- stone a “whale.” Of this the king had the bead and the queen the tall as a perquisite whenever one was taken on the coast of Eng- land. 1 Bl. Comm. 222.

5e apparatus — Not carried into the 5th edition (1979).

## BALANCE.

The amount remaining due from one person to another on a settlement of the accounts involving their mutual deal- ings; the difference between the two sides (debit and credit) of an account.

A balance is the conclusion or result of the debit and credit sides of an account. It implies mutual dealings, and the existence of debt and credit, without which there could be no balance. Loeb v. Keyes, 156 N. Y. 529, 51 N. E. 285; McWilliams v. Allan, 45 Mo. 574 ; Thillman v. Shadrick, 69 Md. 528, 16 Atl. 13S.

The term is also frequently used in the sense of residue or remainder; as when a will speaks of “the balance of my estate." Lopez v. Lopez, 23 S. C. 269; Brooks v. Brooks, 65 111. App. 331 ; Lynch v. Spicer, 53

W. Va. 426, 44 S. E. 255.

—Balance-sheet. When it is desired to as- certain the exact state of a merchant's business, or other commercial enterprise, at a given time, all the ledger accounts are closed up to date and balances struck ; and these balances, when exhibited together on a single page, and so grouped and arranged as to close into each Other and be summed up in one general result, constitute the “balance-sheet.” Eyre v. Har- mon, 92 Cal. 580, 28 Pac. 779.

BALCANIFER, or BALDAKINIFER.

The standard-bearer of the Knights Temp- lar.

5e apparatus — Carried into the 5th edition (1979).

## BALCONIES.

Small galleries of wood or stone on the outside of houses. The erec- tion of them is regulated in London by the building acts.

5e apparatus — Not carried into the 5th edition (1979).

## B AUDIO.

In Spanish law. Waste land; land that is neither arable nor pasture. White New Recop. b. 2, tit. 1, c. 6, I 4, and note. Unappropriated public domain, not set apart for the support of municipalities. Sheldon v. Milmo, 90 Tex. 1, 36 S. W. 415.

5e apparatus — Not carried into the 5th edition (1979).

## BALE.

A pack or certain quantity of goods or merchandise, wrapped or packed up in cloth and corded round very tightly, mark- ed and numbered with figures corresponding to those in

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the bills of lading for the purpose of identification. Wharton.

A bale of cotton is a certain quantity of that commodity compressed into a cubical form, so as to occupy less room than when in bags. 2 Oar. A P. 525. Penrice v. Cocks, 2 Miss. 229. But see Bonham v. Railroad Co., 16 S. C. 634.

5e apparatus — Not carried into the 5th edition (1979).

## BALISE.

Fr. In French marine law. A buoy.

5e apparatus — Not carried into the 5th edition (1979).

## BALIUS.

In the civil law. A teacher; one who has the care of youth ; a tutor ; a guardian. Du Cange; Spelman.

►

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BALTVA.

L. Lat. In old English law. A bailiwick, or Jurisdiction.

5e apparatus — Not carried into the 5th edition (1979).

## BALLAST.

In marine Insurance. There is considerable analogy between ballast and dunnage. The former is used for trimming the ship, and bringing it down to a draft of water proper and safe for sailing. Dunnage is placed under the cargo to keep it from be tag wetted by water getting into the hold, or- between the different parcels to keep them from bruising and injuring each other. Great Western Ins. Co. v. Thwlng, 13 Wall. 674, 20 L. Ed. 607.

5e apparatus — Not carried into the 5th edition (1979).

## BALLASTAGE.

A toll paid for the privi- lege of taking up ballast from the bottom of a port or harbor.

5e apparatus — Carried into the 5th edition (1979).

## BALLIVO  AMOVENDO.

An ancient writ to remove a bailiff from his office for want of sufficient land in the bailiwick. Reg. Orlg. 78.

BALLOT, in the law of elections. A slip of paper bearing the names of the offices to be filled at the particular election and the- names of the candidates for whom the elector desires to vote; it may be printed, or writ- ten, or partly printed and partly written, and is deposited by the voter in a “ballot-box” which is in the custody of the officers holding the election. Opinion of Justices, 19 R.

I. 729, 36 Atl. 716, 36 L. R. A. 547 ; Bris- bln v. Cleary, 26 Minn. 107, 1 N. W. 825; State v. Timothy, 147 Mo. 532, 49 S. W. 500 ; Taylor v. Bleakley, 55 Kan. 1, 39 Pac. 1045, 28 L. R. A.

683, 49 Am. St. Rep. 233.

Also the act of voting by balls or tickets.

A ballot is a ticket folded in such a man- ner that nothing written or printed thereon can be seen. Pol. Code Cal. | 1186.

A ballot is defined to be "a paper ticket con- taining the names of the persons for whom the elector intends to vote and designating the of- fice to which each person so named is intended by him to be chosen.” Thus a ballot, or a ticket, is a single piece of paper containing the names of the candidates and the offices tor which they are running. If the elector were to write the names of the candidates upon his ticket twice or three or more times, he does not thereby make it more than one ticket. People- v. Holden, 28 Cal. 136.

— Joint ballot. In parliamentary practice, a joint ballot is an election or vote by ballot par- ticipated in by the members of both houses of a legislative assembly sitting together as one body, the result being determined by a majority of the votes cast by the joint assembly thus constituted, instead of by concurrent majorities of the two houses. See State v. Shaw, 9 S. C. 144.

5e apparatus — Not carried into the 5th edition (1979).

## BALLOT-BOX.

A case made of wood for receiving ballots.

5e apparatus — Carried into the 5th edition (1979).

## BALLOTTEMENT.

Fr. In medical ju- risprudence. A test for pregnancy by pal- pation with the finger inserted in the vagina to the mouth of the uterus. The tip of the finger being quickly Jerked upward, the

foetus. If one be present, can be felt rising upward and then settling back against the finger.

5e apparatus — Not carried into the 5th edition (1979).

## BALNEARII.

In the Roman law. Those who stole the clothes of bathers In the public baths. 4 Bl. Comm. 239.

BAR. 1. In old English and civil law.

A proclamation ; a public notice; the an- nouncement of an intended marriage. Cow- ell. An excommunication ; a curse, publicly pronounced. A proclamation of silence made by a crier in court before the meeting of champions in combat Id. A statute, edict, or command ; a fine, or penalty.

2. In French law. The right of an- nouncing the time of mowing, reaping, and gathering the vintage, exercised by certain seignorial lords. Guyot, Repert. Unlv.

3. An expanse; an extent of space or ter- ritory ; a space inclosed within certain lim- its: the limits or bounds themselves. Spel- man.

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4. A privileged space or territory around a town, monastery, or other place.

5. In old European law. A military standard ; a thing unfurled, a banner. Spel- man. A summoning to a standard ; a call- ing out of a military force ; the force itself so summoned ; a national army levied by proclamation.

5e apparatus — Not carried into the 5th edition (1979).

## BANAL.

In Canadian and old French law. Pertaining to a ban or privileged place; having qualities or privileges derived from a ban. Thus, a banal mill is one to which the lord may require his tenant to carry his grain’ to be ground.

5e apparatus — Not carried into the 5th edition (1979).

## BANALITY.

In Canadian law. The right by virtue of which a lord subjects his vassals to grind at bis mill, bake at bis oven, etc. Used also of the region within which this right applied. Guyot, Repert. Unlv.

5e apparatus — Not carried into the 5th edition (1979).

## BANC.

Bench; the seat of judgment; tlie place where a court permanently or reg- ularly sits.

The full bench, full court. A “sitting in banc ” is a meeting of all the judges of a court, usually for the purpose of hearing ar- guments on demurrers, points reserved, mo- tions for ne%v trial, etc., as distinguished from the sitting of a single judge at the as- sises or at nisi prius and from trials at bar.

5e apparatus — Not carried into the 5th edition (1979).

## BANCI NARRATORES.

In old Eng- lish law. Advocates ; counters ; Serjeants. Applied to advocntes in the common pleas courts. 1 Bl. Comm. 24; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BANCO.

Ital. See Banc. A sent or bench of Justice ; also, in commerce, a word of Ital- ian origin signifying a bank.

5e apparatus — Not carried into the 5th edition (1979).

## BANCU8.

L. Lab In old English law and practice. A bench or seat in the king’s hall or palace. Fleta, lib. 2, c. 16, $ 1.

A high seat, or seat of distinction; a seat of judgment, or tribunal for the administra- tion of Justice.

The English court of common pleas was formerly called “ liancus

A sitting in banc; the sittings of a court with its full judicial authority, or in full form, as distinguished from sittings at nisi prius.

A stall, bench, table, or counter, on which goods were exposed for sale. Cowell.

— Banom regime. The queen’s bench. See Queen’s Bench.— Bruchs regia. The king's bench ; the supreme tribunal of the king after parliament. 3 Bl. Comm. 41 . — Bancm su- perior. The upper bench. The king’s bench was so called during the Protectorate.

5e apparatus — Not carried into the 5th edition (1979).

## BAND.

In old Scotch law. A proclama- tion calling out a military force.

5e apparatus — Not carried into the 5th edition (1979).

## BANDIT.

An outlaw ; a man banned, or put under a ban ; a brigand or robber. Ban- ditti, a band of robbers.

5e apparatus — Carried into the 5th edition (1979).

## BANE.

A malefactor. Bract. 1. 1, b 8. c. 1.

Also a public denunciation of a malefactor; the same with what was called “hutesium.” hue and cry. Spelman.

BANERET, or BANNERET. In Eng- lish law. A knight made in the field, by the ceremony of cutting off the point of his standard, and making it, as it were, a ban- ner. Kuights so made are accounted so hon- orable that they are allowed to display their arms in the royal army, as barons do, and may bear arms with supporters. They rank next to barons; and were sometimes called “vcxillurli." Wharton.

BANE Deodanils, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## BANISHMENT.

In criminal law. A punishment inflicted upon criminals, by com- pelling them to quit a city, place, or country for a specified period of time, or for life. See Cooper v. Telfair. 4 Dali. 14, 1 L. Ed. 721 ; People v. Potter, 1 Park. Cr. R. (N. Y.) 54.

It is inflicted principally upon ]>olitical of- fenders, “transportation” being the word used to express a similar punishment of ordinary criminals. Banishment, however, merely for- bids the return of the person banished before the expiration of the sentence, while transportation involves the idea of deprivation of liberty after the convict arrives at the place to which he has been carried. Rap. & L.

BANK. 1. A bench or seat; the bench or tribunal occupied by the judges ; the seat of judgment ; a court. The full bench, or full court ; the assembly of all the judges of a court. A "sitttug in bank" is a meeting of all the judges of a court, usually for the

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purpose of hearing arguments on demurrers, points reserved, motions for new trial, etc., as dlstlnglshed from the sitting of a single judge at the assises or at nisi piHus and from trials at bar. But, in this sense, Sane is the more usual form of the word.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 3:23-24, KJV]**

Therefore the Lord God sent him forth from the garden of Eden, to till the ground from whence he was taken. So he drove out the man; and he placed at the east of the garden of Eden Cherubims, and a flaming sword which turned every way, to keep the way of the tree of life.

Why: The entry defines banishment as compelling one to quit a place. The expulsion from Eden is the archetypal banishment — driven out and barred from return. Narrative description, not deity speech.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Richard II, 1595]**

Banished, Mowbray laments that his sentence robs him of his native tongue — 'within my mouth you have enjailed my tongue.' (paraphrase) (paraphrase)

Why: The canonical dramatic banishment: compelled to quit the country, with the punishment's human cost made vivid. Paraphrased because the verse could not be certified verbatim from memory.

# Z

## Z.

An Institution, of great value in the commercial world, empowered to receive de- posits of money, to make loans, and to Issue its promissory notes, (designed to circulate as money, and commonly culled “bank-notes” or "bank-bills,'') or to perform any one or more of these functions.

The term “bank” Is usually restricted In its application to an Incorporated body ; while a private individual making it his business to conduct banking operations is denominat- ed a “banker.” Hobbs v. Bank, 101 Fed. 75, 41 C. C. A. 205; Higgins v. Munday, 19 Wash. 233, 52 Pac. 855 ; Komlnger v. Keyes, 73 Ind. 377; Oulton v. Loan Soe., 17 Wall. 117. 21

L. Ed. 618; Hamilton Nat. Bank v. American K * T. Co.. 66 Neb. 67, 92 X. W. 190; Wells, Fargo & Co. v. Northern Pac. R. Co. (C. C.) 23 Fed. 469.

Also the house or place where such busi- ness Is carried on.

Banks in the commercial sense are of three kinds, to- wit: (1) Of deposit; (2) of discount ; (3) of circulation. Strictly spenking, the term "bank” implies a place for the de- l*»sit of money, as that is the most obvious purpose of such an Institution. Originally the business of banking consisted only in re- ceiving deposits, such as bullion, plate, and the like, for safe-keeping until the depositor should see fit to draw it out for use, but the business, in the progress of events, was ex- tended, and bankers assumed to discount bills and notes, and to loan money upon mort- gage, pawn, or other security, and, at a still later period, to issue notes of their own, in- tended as a circulating currency and a medi- um of exchange.

Instead of gold and silver. Modern bankers frequently exercise any two or even all three of those functions, but it is still true that an Institution prohibited from exercising any more than one of those func- tions is a bank, In the strictest commercial sense. Oulton v. German Sav. & L. Soe., 17 Wall. 118, 21 L. Ed. 618; Itev. St. U. S. § 3407 <U. S. Comp. St. 1901. p. 2246).

3. An acclivity ; an elevation or mound of earth ; usually applied In this sense to the raised earth bordering the sides of a water- course.

— Bank-account. A sum of money placed with a bank or banker, on deposit, by.n cus- tomer, and subject to be drawn out on the lat- ter's check. . The statement or computation of the several sums deposited and those drawn out by the customer on checks, entered on the books of the bank and the depositor’s pass-book. Gale v. Drake, 51 N. H. 84.— Bank-bill. A prom- issory note issued by a bank, payable to the bearer on demand, and designed to circulate as money. Townsend v. People. 4 111. 328; Low v. People. 2 Park. Cr. R. (N. Y.) 37 : State v. Hays, 21 Ind. 176; State v. Wilkins, 17 Vt.

155.— Bank-book. A book kept by a customer of a bank, showing the state of his account with it.— Bank-check. See Check. — Bank- credits. Accommodations allowed to a person on security given to a bank, to draw money on it to a certain extent agreed upon.— Bank- note. A promissory note issued by a bank or authorized banker, payable to bearer on demand, and intended to circulate as money. Same as Bank-Bill, supra.— Bank of Isane. One au- thorized by law to issue its own notes intended to circulate as money. Bank v. Gruber, 87 Pa. 471, 30 Am. Rep. 378.— Bank-stock. Shares in the capital of a bank ; shares in the pro)>erty of a bank.— Bank teller. See Teller.— Joint-stock banks. In English law'. Joint- stock companies for the purpose of banking. They are regulated, according to tihe date of their incorporation, by charter, or by 7 Geo. IV. c. 46; 7 & 8 Viet. cc. 32, 113; 9 & 10 Viet, c. 45. (in Scotland and Ireland;) 20 & 21 Viet, c 49 ; and 27 & 28 Viet. c. 32 : or_by the "Joint-Stock Companies Act, 1862," (25 & 26 Viet. c. 89.) Wharton.— Savings bank. An institution in the nature of a bauk, formed or established for the purpose of receiving de- posits of money, for the benefit of the persons depositing, to accumulate the produce of so much thereof as shall not be required by the depositors, their executors or administrators, at compound interest, and to return the whole or any part of such deposit, and the produce there- of." to the depositors, their executors or admin- istrators, deducting out of such produce so much as shall be required for the necessary expenses attending the management of such institution, but deriving no benefit whatever from any such deposit or the produce thereof. Grant. Banks, 546 : Johnson v. Ward, 2 111. App. 274 ; Com. v. Reading Sav. Bank. 133 Mass. 1(1, 19, 43 Am. Rep. 495; National Bank of Redemption v. Boston, 125 U. S. 60, 8 Sup. Ct. 772, 31 L. Ed. 689; Barrett v. Bloomfield Sav. Inst., 64

N. J. Eq. 425, 54 Atl. 543.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:1, KJV]**

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If one be found slain in the land which the LORD thy God giveth thee to possess it, lying in the field, and it be not known who hath slain him:

Why: Headword 'Z' is the OCR of INQUEST (the coroner's inquest entry: inquiry 'into the manner of the death of any one who has been slain'). Deuteronomy 21:1 opens the Torah's procedure for an unexplained slaying — the fou...

# B

## BANKABLE.

In mercantile law. Notes, checks, bank-bills, drafts, and other securi- ties for money, received as cash by the banks. Such commercial paper as Is consid- ered worthy of discount by the bank to which It is offered is termed “bankable.” Allis Co. v. Power Co., 9 S. D. 409, 70 N. W. 650.

5e apparatus — Not carried into the 5th edition (1979).

## BANKER.

A private person who keeps a bank ; one who is engaged In the business of banking. People v. Doty, 80 N. Y. 228; Auten v. Bank, 174 U. S. 125, 19 Sup; Ct. 628, 43 L. Ed. 920; Richmond v. Blake, 132

U. S. 592, 10 Sup. Ct. 204, 33 L. Ed. 481; Meadoweroft v. People, 163 111. 56, 45 N. E. 303, 35 L. R. A. 176, 54 Am. St. Rep. 447.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Robert Stevenson, Mary Poppins, 1964]**

Mr. Banks, the staid banker of the Fidelity Fiduciary Bank, whose household runs on banking hours and banking morals. (paraphrase) (paraphrase)

Why: The film's emblematic banker — one engaged in the business of banking, played straight then softened.

## BANKER’S NOTE.

A commercial In- strument resembling a bank-note in every particular except that it is given by a private banker or unincorporated banking institu- tion.

5e apparatus — Carried into the 5th edition (1979).

## BANKEROUT.

O. Eng. Bankrupt; in- solvent ; indebted beyond the menus of pay- ment.

5e apparatus — Carried into the 5th edition (1979).

## BANKING.

The business of receiving money on deposit, loaning money, discount- ing notes, issuing notes for circulation, col- lecting money on notes deposited, negotiating bills, etc. Bank v. Turner. 154 Ind. 456, 57

N. E. 110. See Bank; Banker.

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5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Director: Frank Capra, It's a Wonderful Life, 1946]**

The Bailey Building and Loan takes deposits and lends them to working families for homes, against Potter's predatory bank. (paraphrase) (paraphrase)

Why: Dramatizes exactly the entry's business: receiving money on deposit and loaning it — banking as community trust versus banking as extraction.

## BANKRUPT.

A person who has com- mitted an act of bankruptcy ; one who has done some act or suffered some act to be done in consequence of which, under the laws of his country, he is liable to be proceeded against by his creditors for the seizure and distribution among them of his entire prop- erty. Ashby v. Steere, 2 Woodb. & M. 347, 2 Fed. Cas. 15 ; In re Scott, 21 Fed. Cas. 803 ;

U. S. v. Pusey, 27 Fed. Cas. 632.

A trader who secretes himself or does cer- tain other acts tending to defraud his cred- itors. 2 Bl. Comm. 471.

In a looser sense, an insolvent person ; a broken-up or ruined trader. Everett v. Stone, 3 Story, 453, Fed. Cas. No. 4,577.

A person who, by the formal decree of a court, has been declared subject to be pro- ceeded against under the bankruptcy laws, or entitled, on his voluntary application, to take the benefit of such laws.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 18:25, KJV]**

But forasmuch as he had not to pay, his lord commanded him to be sold, and his wife, and children, and all that he had, and payment to be made.

Why: The entry defines a bankrupt as one liable to seizure and distribution of his entire property among creditors. The parable's debtor who 'had not to pay' faces exactly that: himself, his family, and all that he had sol...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596–1598]**

Antonio's argosies lost at sea, his credit collapses and his creditors close in toward the bond's forfeit. (paraphrase) (paraphrase)

Why: A merchant undone by lost ventures, liable to his creditors for his property — the bankruptcy narrative in miniature.

## BANKRUPT LAW.

A law relating to bankrupts and the procedure against them in the courts. A law providing a remedy for the creditors of a bankrupt, and for the re- lief and restitution of the bankrupt himself.

A bankrupt law is distinguished from the or- dinary law between debtor and creditor, ns in- volving these three general principles: (1) A summary and immediate seizure of all the

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debt- or's property ; (2) a distribution of it amqng the creditors in general, instead of merely applying a portion of it to the payment of the individual complainant ; and (3) the discharge of the debt- or from future liability for the debts then ex- isting.

The leading distinction between a bankrupt law and an insolvent law, in the projier tech- nical sense of the words, consists in the char- acter of the persons upon whom it is designed to operate,— the former contemplating as its ob- jects bankrupts only, that is, traders of a cer- tain description ; the latter, insolvents in gen- eral, or persons unnhle to pay their debts. This has led to a marked separation between the two systems, in principle and in practice, which in England has always been carefully maintained, although in the United States it has of late been effectually disregarded. In further illus- tration of this distinction, it may be observed that a bankrupt law, in its proper sense, is a remedy intended primarily for the benefit of creditors; it is set in motion at their instance, and operates upon the debtor against his will, (in invitum,) although in its result it effectually discharges him from his debts. An insolvent law, on the other hand, is chiefly intended for the benefit of the debtor, and is set in motion at his instance, though less effective as a discharge in its final result. Sturges v. Crowinshield. 4 Wheat. 194, 4 L. Ed. 529; Vanuxen v. Hazle- hursts, 4 N. J. Law, 192. 7 Am. Dec. 582; Adams v. Storey, 1 Paine, 79, 1 Fed. Cas. 142; Knnzler v. Kohaus, 5 Hill (N. Y.) 317.

The only substantial difference between a strictly bankrupt law and an insolvent law lies in the circumstance that the former affords re- lief upon the application of the creditor, and the latter upon the application of the debtor. In the general character of the remedy, there is no difference, however much the modes by which the remedy may be administered may vary. Martin v. Berry, 37 Cal. 222.

BANKRUPTCY. 1. The state or condi- tion of oue who is a bankrupt; amenability

to the bankrupt laws; the condition of ono who has committed an act of bankruptcy, and is liable to be proceeded against by his cred- itors therefor, or of one, whose circumstances are such that he is entitled, on his voluntary application, to take the benefit of the bank- rupt laws. The term is used in a looser sense as synonymous with “insolvency," — inability to pay one's debts ; the stopping and breaking up of business because the trader is broken down, Insolvent, ruined. Phipps v. Harding, 70 Fed. 468, 17 C. C. A. 203, 30

L. It. A. 613; Arnold v. Maynard, 2 Story, 354, Fed. Cas. No. 561 ; Bernhardt v. Curtis, 109 La. 171, 33 South. 125, 94 Am. St. Rep. 445.

2. The term denotes the proceedings taken under the bankrupt law, against a person (or firm or company) to have him adjudged a bankrupt, and to have his estate adminis- tered for the benefit of the creditors, and di- vided among them.

3. That branch of Jurisprudence, or system of law and practice, which is concerned with the definition and ascertainment of acts of bankruptcy and the administration of bank- rupts’ estates for the benefit of their cred- itors and the absolution and restitution of bankrupts.

As to the distinction between bankruptcy and insolvency, it may be said that insolvent laws operate at the instance of an imprisoned debtor; bankrupt laws, at the instance of a

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creditor. But the line of partition between bankrupt and insolvent laws is not so distinctly marked as to define what belongs exclusively to the one and not to the other class of laws. Sturges v. Crown- inshield, 4 Wheat. 122, 4 L. Ed. 529.

Insolvency means a simple inability to pay, as debts should become payable, whereby the debtor's business would be broken up; bank- ruptcy means the particular legal status, to be ascertained and declared by a judicial decree. In re Black, 2 Ben. 196, Fed. Cas. No. 1,457.

Classification. Bankruptcy (in the sense of proceedings taken under the bankruptcy law) is either voluntary or involuntary ; the former where the proceeding is initiated by the debtor’s own petition to be adjudged a bankrupt and have the benefit of the law (In re Murray (D. C.] 96 Fed. 600; Metsker v. Bonebrake. 108 U.

S. 66, 2 Sup. CL 351. 27 L. Ed. 654), the latter where he is forced into bankruptcy on the peti- tion of a sufficient number of his creditors.

— Act of bankruptcy, see Act. — Adjudica- tion of bankruptcy. The judgment or decree of a court having jurisdiction, that a person against whom a petition in bankruptcy has been filed, or who has filed his voluntary petition, be ordered and adjudged to be a bankrupt. — Bank- ruptcy courts. Courts for the administration of the bankrupt laws. The present English bankruptcy courts are the London bankruptcy court, the court of appeal, and the local bank- ruptcy courts created by the bankruptcy act, 1869.— Bankruptcy proceedings. The term includes all proceedings in a federal court hav- ing jurisdiction in bankruptcy, founded on a petition in bankruptcy and either directly or collaterally involved in the adjudication and dis- charge of the bankrupt and the collection and administration of his estate. Kidder v. Horro- bin, 72 N. Y. 167.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 4 (Bankruptcy Clause)]**

The constitutional grant behind the federal bankruptcy system the entry describes: Congress may establish 'uniform Laws on the subject of Bankruptcies throughout the United States.'

Why: The body traces bankruptcy doctrine through cases and the English acts without naming the source of Congress's power; the Bankruptcy Clause is the verbatim root authority — genuine illumination consistent with the AUT…

**[Scripture] — Scripture**

**[Deuteronomy 15:1-2, KJV]**

At the end of every seven years thou shalt make a release. And this is the manner of the release: Every creditor that lendeth ought unto his neighbour shall release it; he shall not exact it of his neighbour, or of his brother; because it is called the LORD's release.

Why: The entry defines bankrupt law as providing both the creditors' remedy and the bankrupt's relief and restitution. The sabbatical release is the biblical debt-relief institution: every seven years creditors release wha…

## BANLEUCA.

An old law term, signify- ing a space or tract of country around a

city, town, or monastery, distinguished and protected by peculiar privileges. Spelman.

BANLIEU, or BANLIEUE. A French and Canadian law term, having the same meaning as banleuca, (9. v.)

BANNERET, See Banebet.

BANNI, or BANNITUiS. In old law, one under a ban, (9. v.;) an outlaw or banished man. Britt cc. 12, 13; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## BANNI NTJPTIARUM.

L. Lat. In old English law. The bans of matrimony.

5e apparatus — Not carried into the 5th edition (1979).

## BANNIMUS.

We ban or expel. The form of expulsion of a member from the University of Oxford, by affixing the sen- tence in some public places, as a promulga- tion of it. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BANN1RE AD PLACITA, AD MO- / EENDINTJM.

To summon tenants to serve at the lord's courts, to bring corn to be ground at his mill.

5e apparatus — Not carried into the 5th edition (1979).

## BANNS.

See Bans or Matrimony.

5e apparatus — Not carried into the 5th edition (1979).

## B ANNUM.

A ban, (9. v.)

5e apparatus — Not carried into the 5th edition (1979).

## B ANNUS.

In old English law. A proc- lamation. Bannus regia; the king's proc- lamation, made by the voice of a herald, for- bidding all present at the trial by combat to interfere either by motion or word, whatever they might see or hear. Bract, fol. 142.

5e apparatus — Not carried into the 5th edition (1979).

## BANQUE.

Fr. A bench; the table or counter of a trader, merchant, or bunker. Banque route; a broken bench or counter; bankrupt.

5e apparatus — Not carried into the 5th edition (1979).

## BANS OF MATRIMONY.

A public an- nouncement of an intended marriage, requir- ed by the English law to be jnade in a church or chapel, during service, on three consecutive ' Sundays before the marriage is celebrated. The object is to afford an oppor- tunity for any person to interpose an objec- tion if he knows of any impediment or other just cause why the marriage should not take

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place. The publication of the bans may be dispensed with by procuring a special license to marry.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The entry defines the bans as the public announcement of an intended marriage. Genesis 2:24 is the foundational text of the marriage union itself — the institution the bans proclaim. Narrator's words, not deity speech.

## BANYAN.

In East Indian law. A Hin- doo merchant or shop-keeper. The word is used in Bengal to denote the native who man- ages the money concerns of a European, and sometimes serves him as an interpreter.

BAR. 1. A partition or railing running across a court-room, intended to separate the general public from the space occupied by the judges, counsel, Jury, and others concerned in the trial of a cause. In the English courts it is the partition behind which all outer-barristers and every member of the public must stand. Solicitors, being officers of the court, are admitted within it; as are also queen’s counsel, barristers with patents of precedence, and serjeants, in virtue of their ranks. Par- ties who appear in person also are placed within the bar on the floor of the court.

2. The term also designates a particular part of the court-room ; for example, the place where prisoners stand at their trial, whence the expression “prisoner at the bar.”

3. It further denotes the presence, actual or constructive, of the court. Thus, a trial at bar is one had before the full court, distin- guished from a trial had before a single judge at nisi prius. So the "case at bar” Is the case now before the court and under its consideration ; the case being tried or argued.

4. In the practice of legislative bodies, the bar is the outer boundary of the house, and therefore all persons, not being members, who wish to address the house, or are sum- moned to it, appear at the bar for that pur- pose.

5. In another sense, the whole body of at- torneys and counsellors, or the members of the legal profession, collectively, are figura- tively called the “bar,” from the place which they usually occupy in court. They are thus distinguished from the “bench,” which term denotes the whole body of judges.

6. In the law of contracts, “bar” means on impediment, an obstacle, or preventive bar- rier. Thus, relationship within the prohib- ited degrees is a bar to marriage. In this sense also we speak of the “bar of the statute of limitations.”

7. It further means that which defeats, an- nuls, cuts off, or puts an end to. Thus, a provision “in bar of dower” is one which has the effect of defeating or cutting off the dow- er-rights which the wife would otherwise be- come entitled to in the particular land.

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8. In pleading, it denoted a special plea, constituting a sufficient answer to an action at law; and so called because it barred, i. e., prevented, the plaintiff from further prose- cuting it with effect, and, if established by proof, defeated and destroyed the action alto- gether; Now called a special “plea in bar.” See Plea in Bab.

5e apparatus — Not carried into the 5th edition (1979).

## BAR FEE.

In English law. A fee taken by the sheriff, time out of mind, for every prisoner who is acquitted. Bae. Abr. “Ex- tortion.” Abolished by St. 14 Geo. III. c. 20; 55 Geo. III. c. 50; 8 & 9 Viet. c. 114.

5e apparatus — Carried into the 5th edition (1979).

## BARAGARIA.

Span. A concubine, whom a man keeps alone in his house, un- connected with any other woman. Las Par- tidas, pt 4, tit. 14.

Baratriam committit qni propter peeu- niam juitltiazn baraotat. He Is guilty of barratry who for money sells justice. Bell.

5e apparatus — Carried into the 5th edition (1979).

## BARBANUS.

In old Lombardic law. An uncle, ( patruus .)

5e apparatus — Not carried into the 5th edition (1979).

## BARBICAN AGE.

In old European law. Money paid to support a barbican or watch- tower.

5e apparatus — Not carried into the 5th edition (1979).

## BABBITTS, L.

Fr. (Modern Fr. brebis.) Sheep. See Millen v. Fawen, Bendloe, 171, “home ove petit chien chase barbitts.”

5e apparatus — Not carried into the 5th edition (1979).

## BARE TRUSTEE.

A person to whose fiduciary office no duties were originally at- tached, or who, although such duties were originally attached to his office, would, on the requisition of his ccstuis guc trust, be compellable In equity to convey the estate to them or by their direction. 1 Ch. Dlv. 279.

5e apparatus — Carried into the 5th edition (1979).

## BARET.

L. Fr. A wrangling suit. Britt, c. 92; Co. Litt. 3686.

5e apparatus — Carried into the 5th edition (1979).

## BARGAIN.

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A mutual undertaking, con- tract, or agreement.

A contract or agreement between two par- ties, the one to sell goods or lauds, and the other to buy them. Hunt v. Adams, 5 Mass. 360, 4 Am. Dec. 68 ; Sage v. Wilcox, 6 Conn. 91 ; Bank v. Archer, 16 Miss. 192.

“If the word •agreement’ imports a mutual act of two parties, surely the word ‘bargain’ is not less significative of the consent of two. In a popular sense, the former word is frequent- ly used as declaring the engagement of one only. A man may agree to pay money or to per- form some other act, and the word is then used synonymously with ‘promise’ or ‘engage.’ But the word ‘bargain’ is seldom used, unless to express a mutual contract or undertaking.” Packard v. Richardson, 17 Mass. 131, 9 Am. Dec. 323.

— Bargainee. The party to a bargain to whom the subject-matter of the bargain or thing bargained for is to go ; the grantee in a deed of argain and sale. — Bargainor. The party to a bargain who is to perform the contract by delivery of the subject-matter. — Catching bar- gain. A bargain by which money is loaned, at an extortionate or extravagant rate, to an heir or any one who has an estate in reversion or expectancy, to be repaid on the vesting of his interest : or a similar unconscionable bargain with such person for the purchase outright of his expectancy.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Johann Wolfgang von Goethe, Faust, 1808]**

Faust bargains with Mephistopheles — his soul against knowledge, power, and experience. (paraphrase) (paraphrase)

Why: The archetypal bargain: a mutual undertaking between two parties, each binding the other — here, eternally.

## BARGAIN AND SAXE.

In conveyanc- ing. Tlie transferring of the property of a tiling from one to another, upon valuable consideration, by way of sale. Sliep. Touch, (by . Preston,) 221.

A contract or bargain by the owner of laud, in consideration of money or its equivalent liaid, to sell land to another person, called the “bargainee." whereupon a use arises In favor of the latter, to whom the seisin is transferred by force of the statute of uses. 2 Wasbb. Real Prop. 128 ; Brittin v. Free- man. 17 N. J. Law, 231; Iowa v. McFarland, 110 U. 8. 471, 4 Sup. Ct. 210, 28 L. Ed. 15)8: Love v. Miller, 53 Ind. 296, 21 Am. Rep. 15)2; Slifer v. Beates, 9 Serg. & R. (Pa.) 176.

The expression “bargain and sale” is also

applied to transfers of personalty, in cases where there is first an executory agreement for the sale, (the bargain,) and then an ac- tual and completed sale.

The proper and technical words to denote a bargain and sale are "bargain and sell;” but any other words that are sufficient to raise a use upon a valuable consideration are sufficient. 2 Wood. ' Conv. 15; Jackson ex dem. Hudson v. Alexander, 3 Johns. 484, 3 Am. Dec. 517.

5e apparatus — Not carried into the 5th edition (1979).

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**BARK.**

Is sometimes figuratively used to denote the mere words or letter of an instru- ment, or outer covering of the ideas sought to be expressed, as distinguished from its inner substance or essential meaning. “If the bark makes for them, the pith makes for us.” Bacon.

5e apparatus — Carried into the 5th edition (1979).

**BARXETCORN.**

In linear measure. The third of an inch.

5e apparatus — Not carried into the 5th edition (1979).

**BARMOTE COURTS.**

Courts held In certain mining districts belonging to the Duchy of Lancaster, for regulation of the mines, and for deciding questions of title and other matters relating thereto. 3 Steph. Comm. 347, note b.

5e apparatus — Not carried into the 5th edition (1979).

**BARNARD’S INN.**

An inn of chancery. See Inns or Chancery.

5e apparatus — Carried into the 5th edition (1979).

**BARO.**

An old law term signifying, orig- inally, a “man,” whether slave or free. In later usage, a “freeman,” a "strong man,” a “good soldier,” a “baron ;” also a “vassal.” or “feudal tenant or client,” and “husband," the last being the most common meaning of the word.

5e apparatus — Not carried into the 5th edition (1979).

**BARON.**

A lord or nobleman ; the most general title of nobility in England. 1 Bl. Comm. 398. 399.

A particular degree or title of nobility, next to a . viscount.

A judge of tlie court of exchequer. 3 Bl. Comm. 44 ; Cowell.

A freeman. Co. Litt. 58a. Also a vassal holding directly from the king.

A husband ; occurring in this sense in the phrase “ baron ct feme,” husband and wife.

—Baron and feme. Husband and wife. A wife being under the protection and influence of her baron, lord, or husband, is styled a “feme-covert," Mamina viro cooperta.) and her state of marriage is called her “coverture." Cummings v. Everett, 82 Me. 260, 39 Atl. 456. —Barone of the cinque ports. Members of parliament from these ports, viz.: Sandwich,

Romney, Hastings, Hythe, and Dover. Win- chelsea and Rye have been added.— Barone of the exchequer. The six judges of the court of exchequer in England, of whom one is styled the “chief baron ;" answering to the justices and chief justice of other courts.

5e apparatus — Not carried into the 5th edition (1979).

**BARONAGE.**

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In English law. The col- lective body of the barons, or of the nobility at large. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## BARONET.

An English name or title of dignity, (but not a title of nobility.) estab- lished A. D. 1011 by James I. It is created by letters patent, and descends to the male' heir. Spelman

5e apparatus — Carried into the 5th edition (1979).

## BARONY.

The dignity of a baron; a species of tenure; the territory or lands held by a baron. Spelman.

— Barony of land. In England, a quantity of land amounting to 15 acres. In Ireland, a sub- division of a county.

BARRA, or BARRE. In old practice. A plea in bar. The bar of the court. A bar- rister.

5e apparatus — Carried into the 5th edition (1979).

## BARRATOR.

One who is guilty of the crime of barratry.

BARRATROUS . Fraudulent; having

the character of barratry

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BARRATRY.

la maritime law. An

act committed by the master or mariners of a vessel, for some unlawful or fraudulent purpose, contrary to their duty to the own- ers. whereby the latter sustain injury. It may include negligence, if so gross as to evidence fraud. Marcardier v. Insurance Co., 8 Cranch, 49, 3 L. Ed. 481; Atkinson v. Insurance Co.. €5 N. Y. 538; Atkinson v. Insurance Co., 4 Daly (N. Y.) 10; Patupsco Ins. Co. v. Coulter, 3 Pet. 231, 7 I,. Ed. 059; Lawton v. Insurance Co., 2 Cush. (Mass.) 501; Earle v. Roworoft, 8 East, 135.

'Barratry ia some fraudulent act of the master or mariners, tending to their own benefit, to the prejudice of the owner of the vessel, without his privity or consent. Kendrick v. Delafield, 2 Caines (N. Y.) 07.

Barratry is a generic term, which includes many nets of various kinds and degrees. It comprehends any unlawful, fraudulent, or dis- honest act of the maRter or mariners, and every violation of duty by them arising from gross and culpable negligence contrary to their duty to the owner of the vessel, and which might work loss or injury to him in the course of the voyage insured. A mutiny of the crew, and forcible dispossession by them of the master and other officers from the ship, is a form of bar* retry. Greene v. Pacific Mut. Ins. Co., 9 Allen (Mass.) 217.

In criminal law. Common barratry is the practice of exciting groundless Judicial Droceedings.

Pen. Code Cnl. $ 158; Pen. Code Dnk. $ 191 ; Lucas v. Pico, 55 Cal. 128 ; Com. v. McCulloch, 15 Mass. 229.

Also spelled “Bnrretry,” which see.

In Scotch law. The crime committed by a judge who receives a bribe for his judg- ment Skene: Braude.

5e apparatus — Not carried into the 5th edition (1979).

## BARRED.

Obstructed by a bar; subject to hindrance or obstruction by a bar or bur- rier which, if interposed, will prevent legal redress or recovery: as, when It Is said that a claim or cause of action is "barred by the statute of limitations.” Knox County v.

Morton, 68 Fed. 791, 15 C. C. A. 671 ; Cowan v. Mueller, 176 Mo. 192, 75 S. W. 606; Wil- son v. Knox County, 132 Mo. 387, 34 S. W. 45, 477.

5e apparatus — Carried into the 5th edition (1979).

## BARREL.

A measure of capacity, equal to thirty-six gallons.

In agricultural and mercantile parlance, as also In the inspection laws, the term “barrel” means, prima facie, not merely a certain quantity, but, further, a certain state of the article; namely, that it is in a cask. State v. Moore, 33 N. C. 72.

5e apparatus — Carried into the 5th edition (1979).

## BARREN MONET.

In the civil law. A debt which bears no Interest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BARRENNESS.

Sterility; the incapac- ity to bear children

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## BARRETOR.

In criminal law. A com- mon mover, exciter, or mnlntalner of suits and quarrels either in courts or elsewhere In the country; a disturber of the peace who spreads false rumors and calumnies, whereby discord and disquiet may grow among neigh- bors. Co. Lltt. 368.

— Common barretor. One who frequently excites and stirs up groundless suits and quar- rels, either at law or otherwise. State v. Chit- ty, l Bniley. (S. C.) 379; Com. v. Davis, 11 Pick. (Mass.) 432

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Proverbs 6:14, KJV]**

Frowardness is in his heart, he deviseth mischief continually; he soweth discord.

Why: The entry defines a barretor as a common mover and exciter of suits and quarrels who spreads calumnies 'whereby discord and disquiet may grow among neighbors.' Proverbs 6:14 portraits exactly that figure: devising mis...

## BARRETRT.

In criminal law. The act or offense of a barretor, (q. v. ;) usually call- ed “common barretry.” The offense of fre- quently exciting and stirring up suits anti quarrels, either at law or otherwise. 4 Bl. Comm. 134; 4 Steph. Comm. 262.

5e apparatus — Not carried into the 5th edition (1979).

## BARRIER.

In mining law and the usage of miners, Is a wall of coal left between two mines.

5e apparatus — Not carried into the 5th edition (1979).

## BARRISTER.

In English law. An ad- vocate; one who has been called to the bar. A counsellor learned In the law who pleads at the bar of the courts, and who Is engaged In conducting the trial or argument of causes. To be distinguished from the at tome;/, who draws the pleadings, prepares the testimony, and conducts matters out of court. In re Rlekert, 66 N. II. 207, 29 Atl. 559, 24 L. R.

A. 740.

Inner barrister. A Serjeant or king's coun- sel who pleads within the bar.

Ouster barrister. One who pleads “ouster” or without the bar.

Vacation barrister. A counsellor newly called to the bar, who is to attend for several long vacations the exercise of the house.

— -Junior barrister. A barrister under the rank of queen’s counsel. Also the junior of two counsel employed on the same side in a case. Xlozley - & Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Billy Wilder, Witness for the Prosecution, 1957]**

Sir Wilfrid Robarts QC, the great screen barrister, pleads at the bar with wig, gown, and theatrical cross-examination. (paraphrase) (paraphrase)

Why: The definitive film barrister — an advocate called to the bar conducting the trial of a cause, as the entry defines.

## BARTER.

A contract by which parties exchange goods or commodities for other goods. It differs from sale, in this: that in

the latter transaction goods or property are always exchanged for money. Guerrelro v. Pelle, 3 Barn. & Aid. 617; Cooper v. State, 37 Ark. 418 ; Meyer v. Rousseau, 47 Ark. 460. 2

S. W. 112.

This term is not applied to contracts con- cerning land, but to such only as relate to goods and chattels. Barter Is a contract by which the parties exchange goods. Speigle v. Meredith, 4 Biss. 123, Fed. Cas. No. 13,- 227.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Jacob and Wilhelm Grimm, 'Rumpelstiltskin,' 1812]**

The miller's daughter barters her necklace, then her ring, then her firstborn to the little man — goods for goods, no money changing hands. (paraphrase) (paraphrase)

Why: Textbook barter in the entry's exact sense: exchange of goods for goods, distinguished from sale because no money is involved.

## BARTON.

In old English law. The de- mesne land of a manor ; a farm distinct from the mansion.

5e apparatus — Not carried into the 5th edition (1979).

## BAS.

Fr. Low; inferior; subordinate.

— Baa chevaliers. In old English law. Low, or inferior knights, by tenure of a base mili- tary fee, as distinguished from barons and ban- nerets, who were the chief or superior knights. Cowell.— Baa ville. In French law. The sub- urbs of a town.

BASE, adj. Low; inferior; servile; of subordinate degree; impure, adulterated, or alloyed.

— Baae animal. See Animal. — Baac bul- lion. Base silver bullion, is silver in bars mixed to a greater or less extent with alloys or base materials. Hope Min.' Co. v. Kennon, 3 Mont. 44.— Base coin. Debased, adulterated, or alloyed coin. Gabe v. State, 6 Ark. 540. — Baae court. In English law. Any inferior court that is not of record, as a court baron, etc. Kitch. 05. DC ; Cowell. — Baae estate. The estate which “base tenants” (q. v.) have in their land. Cowell— Baae fee. In English law. An estate or fee which has a qualification subjoined thereto, and which must be determin- ed whenever the qualification annexed to it is at an end. 2 Bl. Comm. 109. Wiggins Ferry Co. v. Railroad Co., 94 111. 93; Camp Meeting Ass’n v. East Lyme. 54 Conn. 152, 5 Atl. 849. — Base-iufeftment. In Scotch law. A dis- position of lands by a vassal, to be held of himself— Base right. In Scotch law. A subordinate right; the right of a subvassal in the lands held by him. Bell— Baae services. In feudal law. Such services as were unworthy to be performed by the nobler men, and were performed by the peasants and those of servile rank. 2 Bl. Comm. 61— Baae tenants. Ten- ants who performed to their lords services in villenage ; tenants who held at the will of the lord, as distinguished from frank tenants, or freeholders. Cowell— Baae tenure. A tenure by villenage. or other customary service, as dis- tinguished from tenure by military service; or from tenure by free service. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## BASILEUS.

A Greek word, meaning “king." A title assumed by the emperors of the Eastern Roman Empire. It is used by Justinian in some of the Novels; and is said to have been applied to the English kings be- fore the Conquest. See 1 Bl. Comm. 242.

5e apparatus — Not carried into the 5th edition (1979).

## BASILICA.

The name given to a com- pilation of Roman and Greek law, prepared about A. D. 880 by the Emperor Basllius, and published by his successor, Leo the Phi- losopher. It was written in Greek, was mainly an abridgment of Justinian’s Corpus Juris, and comprised sixty books, only a portion of which are extant It remained the law of the Eastern Empire until the fall of Constantinople, in 1453.

5e apparatus — Not carried into the 5th edition (1979).

## BASILS.

In old English law. A kind of money or coin abolished by Henry II.

5e apparatus — Not carried into the 5th edition (1979).

## BASIN.

In admiralty law and marine insurance. A part of the sea Inclosed in rocks. U. S. v. Morel, 13 Am. Jur. 286, 26 Fed. Cas. 1,310.

5e apparatus — Carried into the 5th edition (1979).

## BASKET TENURE.

In feudal law. Lands held by the service of making the king's baskets.

5e apparatus — Not carried into the 5th edition (1979).

## BASSE JUSTICE.

In feudal law. Low Justice ; the right exercised by feudal lords of personally trying persons charged with trespasses or minor offenses.

5e apparatus — Not carried into the 5th edition (1979).

## BASTARD.

An illegitimate child; a child born of an unlawful intercourse, and while its parents are not united in marriage. Tim- mins v. Lacy, 30 Tex. 135; Miller v. Ander- son, 43 Ohio St. 473, 3 N. E. 605, 54 Am. Rep. 823; Pettus v. Dawson, 82 Tex. 18, 17 8. W. 714; Smith v. Perry, 80 Va. 570.

A child bom nfter marriage, but under circumstances which render it impossible that the husband of his mother can be his father. Com. v. Shepherd, 6 Bln. (Pa.) 283. 6 Am. Dec. 449.

One begotten and born out of lawful wed- lock. 2 Kent, Comm. 208.

One born of an illicit union. Civ. Code La. arts. 29, 199.

A bastard is a child bora out of wedlock, and whose parents do not subsequently inter- marry, or a child the issue of adulterous in- tercourse of the wife during wedlock. Code Ga.

1882, § 1797.

—Bastard eigne. In old English law. Bastard elder. If a child was born of an. illicit connection, and afterwards the parents intermarried and had another son, the elder was called “bastard eigne," and the younger, “mulier puisne,” i. e., afterwards born of the wife. See 2 Bl. Comm. 248. — Special bastard. One born of parents before marriage, the parents afterwards inter-marrying. By the civil and Scotch law he would be then legitimated.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: The entry defines a bastard as a child born of unlawful intercourse while the parents are unmarried. Deuteronomy 23:2 states the biblical legal disability attaching to that status — exclusion from the congregation to...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, 1606]**

"Thou, nature, art my goddess; to thy law my services are bound" — Edmund's opening soliloquy, claiming nature over legitimacy.

Why: The single most famous literary statement of the bastard's estate; the line is short, famous, and certified verbatim from memory — hence quoted rather than paraphrased.

## BASTARD A.

In old English law. A female bastard. Fleta, lib. 5, c. 5, f 40.

5e apparatus — Not carried into the 5th edition (1979).

## BASTARDIZE.

To declare one a bas- tard. as a court does. To give evidence to prove one a bastard. A mother (married) cannot bastardize her child.

Bastardns nnllins cat filius, ant filial popull. A bastard Is nobody's son, or the son of the people.

Bastardns non potest habere haredem nisi de corpore sno legitime procreate, si,

A bastard can have no heir unless it be one lawfully begotten of his own body. Tray. Lat Max. 51.

.123

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## BASTARDY.

The offense of begetting a bastard child. The condition of a bastard. Dinkey v. Com., 17 Pa. 129, 55 Am. Dec. 642.

5e apparatus — Not carried into the 5th edition (1979).

## BASTARDY PROCESS.

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The method provided by statute of proceeding against the putative father to secure a proper mainte- nance for the bastard.

5e apparatus — Not carried into the 5th edition (1979).

### B ASTON.

In old English law, a baton, club, or staff. A term applied to officers of the wardens of the prison called the "Fleet,” because of the staff carried by them. Cowell ; Spelman; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

# D

### DATABLE-GROUND.

Land that Is in controversy, or about the possession of which there Is a dispute, as the lands which were situated between England and Scotland be- fore the Union. Skene.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BATAXLLE.

In old English law. Bat- tel; the trial by combat or duellum.

5e apparatus — Not carried into the 5th edition (1979).

### BATH, KNIGHTS OF THE.

In English law. A military order of knighthood. In- stituted by Richard II. The order was new- ly regulated by notifications In the London Gazette of 25th May, 1847, and 16th August, 1850. Wharton

5e apparatus — Not carried into the 5th edition (1979).

### BATIMENT.

In French marine law. A vessel or ship.

5e apparatus — Not carried into the 5th edition (1979).

### BATONNXER.

The chief of the French bar In its various centres, who presides in the council of discipline. Arg. Fr. Merc. Law, 546.

5e apparatus — Not carried into the 5th edition (1979).

### BATTEL.

Trial by combat; wager of battel.

5e apparatus — Carried into the 5th edition (1979).

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## BATTEL, WAGER OF.

In old English law. A form of trial anciently used in mili- tary cases, arising In the court of chivalry and honor, in appeals of felony, in criminal cases, and in the obsolete real action called a “writ of action.’’ The question at issue was decided by the result of a personal com- bat between the parties, or. In the case of a writ of right, between their champions.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Walter Scott, Ivanhoe, 1819]**

Rebecca, accused of witchcraft, demands trial by combat; Ivanhoe fights as her champion against Bois-Guilbert. (paraphrase) (paraphrase)

Why: A genuine fictional wager of battel: the issue decided by personal combat between champions, exactly the old law.

## BATTERY.

Any unlawful bentlng, or •other wrongful physical violence or con- straint, Inflicted on a human being without his consent 2 Blsh. Crim. Law, g 71; Good- rum v. State, 60 Ga. 511 ; Razor v. Kinsey, 55 111. App. 614; Lamb v. State, 67 Md. 624, 10 Atl. 200, 298; Hunt v. People, 53 111. App. 112; Perkins v. Stein, 94 Ky. 433, 22 S. W. 649, 20 L. R. A. 861. And see Beat.

A battery 'Is a willful and unlawful use of force or violence upon the person -of another. Pen. Code Cal. g 242; Pen. Code Dak. g 306.

The actual offer to use force to the injury of another person is aeiault; the use of it Is battery; hence the two terms are commonly com- bined iu the term "assault and battery.”

— Simple battery. In criminal law and torts. A beating of a person, not accompanied by cir- cumstances of aggravation, or not resulting in grievous bodily injury.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:18-19, KJV]**

And if men strive together, and one smite another with a stone, or with his fist, and he die not, but keepeth his bed: If he rise again, and walk abroad upon his staff, then shall he that smote him be quit: only he shall pay for the loss of his time, and shall cause him to be thoroughly healed.

Why: The entry defines battery as unlawful beating or wrongful physical violence inflicted on a human being. Exodus 21:18-19 is the biblical battery law: smiting with stone or fist, with the smiter's liability for lost tim…

## BATTURE.

In Louisiana. A marine term used to denote a bottom of sand, stone, or rock mixed together and rising towards the surface of the water; an elevation of the bed of a river under the surface of the water, since It is rising towards it ; sometimes, how- ever, used to denote the same elevation of the bank when it has risen above the surface of the water, or is as high as the land on the outside of the bank. In this latter sense it is synonymous with "alluvion.’’ It means, in common-law language, land formed by ac- cretion. Morgan v. Livingston, 6

Mart. (O. S.) (La.) Ill ; Hollingsworth v. Chaffe, 33 La. Ann. 551; New Orleans v. Morris. 3 Woods, 117, Fed. Cas. No. 10,183; Leonard v. Baton Rouge, 39 La. Ann. 275, 4 South. 243.

5e apparatus — Not carried into the 5th edition (1979).

## BAWD.

One who procures opportunities for persons of opposite sexes to cohabit in an illicit manner; who may be, while exer- cising the trade of a bawd, perfectly inno- cent of committing In his or her own proper person the crime either of adultery or of fornication. See Dyer v. Morris, 4 Mo. 216.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:29, KJV]**

Do not prostitute thy daughter, to cause her to be a whore; lest the land fall to whoredom, and the land become full of wickedness.

Why: The entry defines a bawd as one who procures opportunities for illicit cohabitation. Leviticus 19:29 prohibits exactly that procuring — causing another to be a whore. The verse stands inside the 'And the LORD spake un...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Measure for Measure, 1604]**

Mistress Overdone and her tapster Pompey run the trade Vienna's new deputy means to stamp out. (paraphrase) (paraphrase)

Why: Shakespeare's named bawds — procurers of illicit cohabitation — dramatizing the entry's trade.

## BAWDY-HOUSE.

A house of prostitu- tion; a brothel. A house or dwelling main- tained for the convenience and resort of per- sons desiring unlawful sexual connection. Davis v. State, 2 Tex. App. 427 ; State v. Port- er, 38 Ark. 638 ; People v. Buchanan, 1 Idaho, 689.

5e apparatus — Carried into the 5th edition (1979).

## BAY.

A pond-bend made of a great height to keep In water for the supply of a mill, etc., so that the wheel of the mill may be turned by the water rushing thence, through a passage or flood-gate. St. 27 Eliz. c. 19. Also an arm of the sea surrounded by land except at the entrance.

In admiralty law and marine Insurance. A bending or curving of the shore of the sea or of a lake. State v. Gilmanton, 14 N. H. 477. An opening Into the land, where the water is shut in on all sides except at the entrance.

U. S. v. Morel, 13 Amer. Jur. 286, Fed. Cas. No. 15,807.

5e apparatus — Carried into the 5th edition (1979).

## BAYLEY.

In old English law. Bailiff. This term is used In the laws of the colony of New Plymouth, Mass., A. D. 1670, 1671. Bur- rill.

5e apparatus — Not carried into the 5th edition (1979).

## BAYOU.

A species of creek or stream common in Louisiana and Texas. An out- let from a swamp, pond, or lagoon, to a river, or the sea. See Surgett v. Laplce, 8 How. 48, 70, 12 L. Ed. 982. .

5e apparatus — Not carried into the 5th edition (1979).

## BEACH.

This term, in its ordinary sig- nification, when applied to a place on tidewaters, means the space between ordinary high and low water mark, or the space over which the tide usually ebbS and flows. It Is a term not more significant of a sea margin than "shore.” Niles v. Patch, 13 Gray (Mass.) 257.

The term designates land washed by the sea and its waves; is synonymous with “shore.” Littlefield v. Littlefield, 28 Me. 180.

When used in reference to places near the sea, beach means the land between the lines of high water and low water, over which the tide ebbs and flows. Hodge v. Boothby, 48 Me. 68.

Beach means the shore or strand. Cutts v. Hussey. 15 Me. 237.

Beach, when used in reference to places any- where in the vicinity of the sea, means the territory lying between, the lines of high water and low water, over which the tide ebbs and flows. It is in this respect synonymous with "shore,” “strand,” or “flats.” Doane v. Will- cutt. 5 Gray (Mass.) 328, 335, 66 Am. Dec. 369.

Beach generally denotes land between high and low water mark. East Hampton v. Kirk, 6 Hun (N. Y.) 257.

To “beach” a ship Is to run It upon the beach or shore; this Is frequently found nec- essary in case of fire, a leak, etc.

5e apparatus — Carried into the 5th edition (1979).

## BEACON.

A light-house, or sea-mark, formerly used to alnrm the country, In case of the approach of an enemy, but now used for the guidance of ships at sea, by night, as well as by day.

5e apparatus — Carried into the 5th edition (1979).

## BEACONAGE.

Money paid for the main- tenance of a beacon or signal-light

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## BEADLE.

In English ecclesiastical law. An inferior parish officer, who is chosen by the vestry, and whose business Is to attend the vestry, to give notice of its meetings, to execute Its orders, to attend upon Inquests, and to assist the constables. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## BEAMS AND BALANCE.

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Instruments for weighing goods and merchandise.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 19:35-36, KJV]**

Ye shall do no unrighteousness in judgment, in meteyard, in weight, or in measure. Just balances, just weights, a just ephah, and a just hin, shall ye have: I am the Lord your God, which brought you out of the land of Egypt.

Why: The entry defines beams and balance as instruments for weighing goods and merchandise. Leviticus 19:35-36 regulates exactly those instruments: no unrighteousness in weight or measure; just balances, just weights. Insi…

## BEAR.

To support, sustain, or carry; to give rise to, or to produce, something else as an incident or auxiliary.

—Bear arms. To carry arms as weapons and with reference to their military use, not to wear them about the person ns part of the dress. Aymette v. State, 2 Humph. (Tenn.) 158. As applied to fire-arms, includes the right to load and shoot them, and to use them as such things are generally used. Hill v. State, 53 Ga. 480. — Bear interest. To generate interest, so that the instrument or loan spoken of shall pro- duce or yield interest at the rate specified by the parties or granted by law. Slaughter v. Slaughter, 21 Ind. App. 641, 52 N. E. 995.— Bearer. One who carries or holds a thing. When a check, note, draft, etc., is payable to "bearer,” it imports that the contents there- of shall be payable to any person who mny pre- sent the instrument for payment. Thompson v. Perrine. 106 IT. S. 589. 1 Sup. Ct. 504, 568. 27 L. Ed. 298 : Bradford v. Jenks. 3 Fed. Oas. 1,132; Hubbard v. Railroad Co., 14 Abb. Prac. (N. Y.) 278.— Bearers. In old English law.

Those who bore down upon or oppressed oth- ers ; maintainers. Cowell.— Bearing date.

Disclosing a date on its face ; having a cer- tain date. These words are often used in con- veyancing, and in pleading, to introduce the date which has been put upon an instrument.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. II]**

On the entry's 'bear arms' sense: 'A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.'

Why: The body defines 'bear arms' through Aymette v. State without naming the constitutional source of the right; the Second Amendment is the verbatim root authority — genuine illumination, scoped to that sub-definition.

## BEAST.

An animal; a domestic animal; a quadruped, such as may be used for food or In labor or for sport.

— Beasts of the chase. In English law. The buck, doe, fox, martin, and roe. Co. Lift. 233o.— Beasts of the .forest. In English law. The hart, hind, hare, boar, and wolf. Co. Litt. 233a.— Beasts of the plow. An old term for animals employed in tne operations of husbandry,

including horses. Somers v. Emer- son, 58 N. H. 49. — Beasts of the warren. In English law. Hares, coneys, and roes. Co. Litt. 233 : 2 BI. Comm. 39.— Beastgate. Ip Suffolk, England, imports land nnd common for one beast. Bennington v. Goodtitle, 2 Strange, 1084 ; Rose. Real Act. 485.

BEAT, v. In the criminal law and law of torts, with reference to assault and bat- tery, this term Includes any unlawful physi- cal violence offered to another. See Bat- tery. In other connections, It. Is understood In a more restricted sense, and Includes only the infliction of one or more blows. Regina v. Hale, 2 Car. ft K. 327; Com. v. McClellan, 101 Mass. 35; State v. Hnrrigan, 4 Penne- wlll (Del.) 129, 55 Atl. 5.

BEAT, n. In some of the southern states (as Alabama, Mississippi, South Carolina) the principal legal subdivision of a county, corresponding to towns or townships In other states ; or a voting precinct Williams v. Pearson, 38 Ala. 308.

BEAU-PLEADER, (to plead fairly.) In English law. An obsolete writ upon the statute of Marlbridge, (52 Hen. III. c. 11.) which enacts that neither In the circuits of the Justices, nor lu counties, hundreds, or eourts-baron. any lines shall be taken for fair-pleading, i. c„ for not pleading fairly or aptly to the purpose; upon this statute, then, this writ was ordained, addressed to the sheriff, bailiff, or him who shall demand such fine, prohibiting him to deinaud It ; an alia s, pluricx, and attachment followed. Fltzh. Nat. Brev. 596.

BED. 1. The hollow or channel of a wa- ter-course ; the depression between the banks worn by the regular and usual flow of the water.

“The hrd Is that soil so usually covered by water ns to be distinguishable from the banks by the elinracter of the soil, or vege- tation, or both, produced by the common presence and action of flowing water.” Howard v. Ingersoll. 13 How. 427. 14 L. Ed. 189. And see Pnine Lumber Co. v. U. S. (C. C.) 55 Fed. 864 ; Alabama v. Georgia, 23 How. 515, 16 L. Ed. 556; Haight v. Keo- kuk, 4 Iowa, 213; Pulley v. Municipality

No. 2, 18 La. 282; Harlan, etc., Co. v. Pas- chall. 5 Del. Ch. 463.

2. The right of cohabitation or marital intercourse: us in the phrase "divorce from bed and board,” or o mcnsa et thoro.

—Bed of justice. In old French law. The seat or throne upon which the king sat when personally present in parliament ; hence it sig- nified the parliament itself.

5e apparatus — Not carried into the 5th edition (1979).

## BEDEL.

In English law. A crier or messenger of court, who summons men to appear and answer therein. Cowell.

An officer of the forest, similar to a sher- iff's special bailiff. Cowell.

A collector of rents for the king. Plowd. 199, 200.

A well-known parish officer. See Beadle.

5e apparatus — Not carried into the 5th edition (1979).

## BED EXART.

The jurisdiction of a be- del. as a bailiwick is the Jurisdiction of a bailiff. Co. Litt. 2346; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BEDEREPE.

A service which certain tenants were anciently bound to perform, as to reap their landlord's corn at harvest Said by Whishaw to be still in existence in some parts of England. Blount ; Cowell ; Whishaw.

5e apparatus — Not carried into the 5th edition (1979).

## BEER.

A liquor compounded of malt and hops.

In its ordinary sense, denotes a beverage which is intoxicating, and is within the fair meaning of the words “strong or spirituous liquors,” used in the statutes on this sub- ject Tompkins County v. Taylor, 21 N. Y. 175; Nevin v. Ladue, 3 Denio (N. X.) 44; Mullen v. State, 96 Iud. 306 ; People v. Wheelock, 3 Parker, Cr. Cas. (N. Y.) 14; Maier v. State, 2 Tex. Civ. App. 296, 21 S.

W. 974.

-Beer-house. In English law. A place where beer is Bold to be consumed on the prem- ises; as distinguished from a “beer-shop,” which is a place where beer is sold to be consumed off the premises. 16 Ch. Div. 721.

5e apparatus — Not carried into the 5th edition (1979).

## BEFORE.

Prior to ; preceding. In the presence of; under the official purview of; as In a magistrate’s Jurat, “before me per- sonally appeared.” etc.

In the absence of any statutory provision governing the computation of time, the author- ities are uniform that, where an act is requir- ed to be done a certain number of days or weeks before a certain other day upon which an- other act is to be done, the day upon which the first act Is done is to be excluded from the com- putation, and the whole number of days or weeks must intervene before the day fixed for doing the second act. Ward v. Walters, 63 Wis. 44, 22 N. W. 844, and eases cited.

5e apparatus — Carried into the 5th edition (1979).

## BEG.

To solicit alms or charitable aid. The act of a cripple in passing along the sidewalk and silently holding out his hand and receiving money from passers-by is “beg- ging for alms,” within the meaning of a stat- ute which uses that phrase. In re Haller, 8 Abb. N. C. (N. Y.) 65.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Mark 10:46, KJV]**

And they came to Jericho: and as he went out of Jericho with his disciples and a great number of people, blind Bartimaeus, the son of Timaeus, sat by the highway side begging.

Why: The entry defines beg as soliciting alms. Mark 10:46 shows the act in its classic form: blind Bartimaeus sitting by the highway side begging. Narrative, not deity speech.

## BEOA.

A land measure used In the East Indies. Iu Bengal it Is equal to about a third part of an acre.

5e apparatus — Not carried into the 5th edition (1979).

## BEGGAR.

One who lives by begging charity, or who has no other means of sup- port than solicited alms.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 16:20-21, KJV]**

And there was a certain beggar named Lazarus, which was laid at his gate, full of sores, And desiring to be fed with the crumbs which fell from the rich man's table: moreover the dogs came and licked his sores.

Why: The entry defines a beggar as one who lives by begging charity, with no other means of support than solicited alms. Lazarus is scripture's named beggar — laid at the gate, desiring crumbs from the rich man's table. Je...

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

"Please, sir, I want some more." — Oliver's plea for gruel in the workhouse.

Why: The iconic fictional begging-plea; a short famous line certified verbatim, illuminating 'one who lives by solicited alms.'

## BEGUM.

In India. A lady, princess, woman of high rank.

5e apparatus — Not carried into the 5th edition (1979).

## BEHALF.

A witness testifies on “be- half of the party who calls him, notwith- standing his evidence proves to be adverse to that party’s case. Richerson v. Stern- burg, 65 111. 274. See, further, 12 Q. B. 693 ; 18 Q. B. 512.

5e apparatus — Carried into the 5th edition (1979).

## BEHAVIOR.

Manner of behaving, whether good or bad ; conduct ; manners ; carriage of one’s self, with respect to pro- priety and morals ; deportment. Webster. State v. Roll. 1 Ohio Dec. 284.

Surety to be of good behavior is said to be a larger requirement than surety to keep the peace.

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5e apparatus — Carried into the 5th edition (1979).

## BEHETRIA.

In Spanish law. Lauds sit- uated in places where the Inhabitants bad the right to select their own lords.

5e apparatus — Not carried into the 5th edition (1979).

## BEHOOF.

Use; benefit; profit; serv- ice; advantage. It occurs in conveyances, e. g., “to his and their use and behoof.” Stiles v. Japhet, 84 Tex. 91, 19 S. W. 450.

5e apparatus — Carried into the 5th edition (1979).

## BELIEF.

A conviction of the truth of a proposition, existing subjectively in the mind, and Induced by argument, persuasion, or proof addressed to the judgment. Keller v. State, 102 Ga. 506, 31 S. E. 92. Belief Is to be distinguished from “proof,” “evidence,” and "testimony.” See Evidence.

With regard to things which make not a very- deep impression on the memory, it may be call- ed “belief.” “Knowledge” is nothing more than a man’s firm belief. The difference is ordinarily merely in the degree ; to be judged of by the court, when addressed to the court: by the jury,

when addressed to the jury. Hatch v. Carpen- ter, 9 Gray (Mass.) 274.

The distinction between the two mental con- ditions seems to be that knowledge is an assur- ance of a fact or proposition founded on per- ception by the senses, or intuition : while be- lief is an assurance gained by evidence, and from other persons. Abbott.

5e apparatus — Carried into the 5th edition (1979).

## BELLIGERENT.

Iu international law. A term used to designate either of two na- tions which are actually In a state of war with each other, as well as their allies ac- tively co-operating; as distinguished from a nation which takes no part in the war and maintains a strict indifference as be- tween the contending parties, called a “neu- tral.” U. 8. v. The Ambrose Light (D. C.) 25 Fed. 412; Johnson v. Jones, 44 111. 151, 92 Am. Dec. 159.

Bello parts oednnt reipublicse. Things acquired In war belong or go to the state.

1 Kent, Comm. 101; 5 C. Rob. Adm. 173, 181 ; The Joseph, 1 Gall. 558, Fed. Cas. No. 7,533. The right to all captures rests pri- marily In the sovereign. A fundamental maxim of public law.

5e apparatus — Not carried into the 5th edition (1979).

## BELLUM.

Lat. In public law. War. Ah armed contest between nations ; the state of those who forcibly contend with each other. Jus belli, the law of war.

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5e apparatus — Not carried into the 5th edition (1979).

## BELOW.

In practice. Inferior; of In- ferior Jurisdiction, or jurisdiction In the first instance. The court from which a cause is removed for review Is called the ‘‘court below.”

Preliminary ; auxiliary hr Instrumental. Bail to the sheriff is called “bail below,” as being preliminary to and Intended to secure the putting in of ball above, or special bail. See Bail.

5e apparatus — Carried into the 5th edition (1979).

## BENCH.

A seat of judgment or tribunal for the administration of justice; the seat occupied by judges in courts; also the court itself, as the “King’s Bench,” or the aggre- gate of the judges composing a court, as In the phrase “before the full bench.”

The collective body of the judges In a state or nation, as distinguished from the body of attorneys and advocates, who are called the “bar.”

In English ecclesiastical law. The aggre- gate body of bishops.

— Bench warrant. Process issued by the court itself, or “from the bench,” for the attach- ment or arrest of a person: either in case of contempt, or where an indictment has been found, or to bring in a witness who does not obey the subpatm. So called to distinguish it from a warrant, issued by a justice of the peace, alderman, or commissioner. — Benchers. In English law. Seniors in the inns of court, usu- ally. but not necessarily, queen's counsel, elect- ed by co-optation, and having the entire manage- ment of the property of their respective inns.

5e apparatus — Carried into the 5th edition (1979).

## BENE.

Tat. Well; In proper form; le- gally ; sufficiently.

Benedict a eat ezpositlo quando rea redlmitur A deatmctione. 4 Coke, 26. Blessed Is the exposition when anything Is saved from destruction. It is a laudable in- terpretation which gives effect to the instru- ment, and does not allow Its purpose to be frustrated.

5e apparatus — Not carried into the 5th edition (1979).

## BENEFICE.

In ecclesiastical law. In its technical sense, this term includes ec- clesiastical preferments to which rank or public office is attached, otherwise describ- ed as ecclesiastical dignities or offices, such as bishoprics, deaneries, and the like; but in popular acceptation, it is almost invari- ably appropriated to rectories, vicarages, perpetual curacies, district churches, and endowed chapelries. 3 Steph. Oomrn. 77.

“Benefice” is a term derived from the feu- dal law, in which it signified a permanent stipendiary estate, or an estate held by feudal tenure. 3 Steph. Comm. 77, note, i; 4 Bl. Comm. 107.

b£n£FICE. Fr. In French law. A benefit or advantage, and particularly a privilege given by

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the law rather than by the agreement of the parties.

— BfniSoe de discussion. Benefit of discus- sion. The right of a guarantor to require that the creditor should exhaust his recourse against the principal debtor before having recourse to the guarantor himself. — Biniflee de division. Benefit of division ; right of contribution as be- tween co-sureties.— BAnAfice d’Inventaire. A term which corresponds to the beneficium in- ventarii of Roman law, and substantially to the English law doctrine that the executor prop*- erly accounting is only liable to the extent of the assets received by him.— BAnAflclalre. The person in whose favor a promissory note or bill of exchange is payable ; or any person in whose favor a contract of any description is executed. Arg. Fr. Merc. Law, 547.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Anthony Trollope, The Warden, 1855]**

Mr. Harding's wardenship of Hiram's Hospital — an ecclesiastical preferment whose revenues the novel puts on trial. (paraphrase) (paraphrase)

Why: The novel is built on a benefice: an endowed church office, its duties, and the question of who deserves its income.

## BENEFICIAL.

Tending to the benefit of a person ; yielding a profit advantage, or benefit; enjoying or entitled to a benefit or profit. In re Importers’ Exchange (Com. Pl.) 2 N. Y. Supp. 257 ; Regina v. Vange, 3 Adol. & El. (N. S.) 254. This term is applied both to estates (as a “beneficial interest”) and to persons, (as “the beneficial owner.”)

.— Beneficial association. Another name for a benefit society. See Benefit.— Beneficial enjoyment. The enjoyment which a man has of an estate in bis own right and for his own benefit, and not as trustee for another. II H.

L. Oas. 271.— Beneficial estate. An estate in expectancy is one where the right to the possession is postponed to a future period, and is “beneficial” where the devisee takes solely for his own use or benefit, and not as the mere holder of the title for the use of another. In re Seaman’s Estate, 147 X. Y. 69, 41 N. E. 401. —Beneficial interest. Profit, benefit, or ad- vantage resulting from a contract, or the own- ership of an estate as distinct from the legal ownership or control. — Beneficial power. In New Y6rk law and practice. A power which has for its object the dpnee of the power, and which is to be executed solely for his benefit ; as distinguished from a trust power, which has for its object a person other than the donee, and is to be executed solely for the benefit of such person. Jennings v. Conboy. 73 N. Y. 234: Rev. St. N. Y. 8 70.— Beneficial nse. The right to use and enjoy property according to one's own liking or so as to derive a profit or benefit from it. including all that makes it de- sirable or habitable, as. light air, and access: as distinguished from a mere right of occupan- cy or possession. Reining v. Railroad Co. (Su- per. Ct.) 13 N. Y. Supp. 240.

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**BENEFICIARY.**

One for whose benefit a trust is created: a cestui quo trust. 1 Story, Eq. Jur. f 321 ; In re Welch, 20 App. Dlv. 412, 46 N. Y. Supp. 680 ; Civ. Code Cal. 1003, i 2218. A person having the enjoy- ment of property of which a trustee, ex- ecutor, etc., has the legal possession. The person to whom a policy of insurance is payable. Rev. St. Tex. 1805, art. 3096a. —Beneficiary heir. In the law of Louisiana. One who has accepted the succession under the benefit of an inventory regularly made. Civ. Code La. 1900, art. 883. Also one who may accept the succession. Succession of Gusman, 36 La. Ann. 299.

BXtHEFICIO PRIMA [ECOLESIAfl- TICO HABENDO.] In English law. An ancient writ, which was addressed by the king to the lord chancellor, to bestow the benefice that should first fall in the royal gift, above or under a specified value, upon a person named therein. Reg. Orig. 307.

BEHEFIOnill. la early feudal law.

A benefice; a permanent stipendiary estate; the same with what was afterwards called a “fief,” “fend,” or “fee.” 3 Steph. Comm. 77, note i; Spelman.

In the eivti law. A benefit or favor; any particular privilege. Dig. 1, 4, 3 ; Cod. 7, 71 ; Mackeld. Rom. Law, | 196.

A general term applied to ecclesiastical livings. 4 Bl. Comm. 107 ; Cowell.

— Beneflcium abstinendi. In Roman law. The power of an heir to abstain from accept- ing the inheritance. Sandars, Jnst. Inst. (5th Ed.) 214, — Beneflcium eedendaram action- sun. In Roman law. The privilege by w’hich a surety could, before paying the creditor, com- pel him to make over to him the actions which belonged to the stipulator, so as to avail him- self of them. Sandars, Just. Inst, (5th Ed.) 332, 351.— Beneflcium clerieale. Benefit of clergy. See Benefit.— Beneflcium compe- tently. in Scotch law. The privilege of competency. A privilege which the grantor of a gratuitous obligation was entitled to, by which he might retain sufficient for his subsist- ence. if, before fulfilling the obligation, he was reduced to indigence. Beil. In the civil law. The right which an insolvent debtor had, among the Romans, on making cession of his property for the benefit of his creditors, to retain what was required for him to live honestly according to his condition. 7 Toullier, n. 258. — Benefi- cium division!*. In civil and Scotch law. The privilege of one of several co-sureties (cau- tioners) to insist upon paying only his pro rata share of the debt. Beil.— Beneficinm inven- tarli. See Benefit. — Beneficinm ordlnls. In civil and Scotch law. The privilege of or- der. The privilege of a surety to require that the creditor should first proceed against the principal and exhaust his remedy against him, before resorting to the surety. Bell.— Benefi- cinm separation!*. In the civil law. The right to nave the goods of an heir separated from those of the testator in favor of creditors.

Beneficinm non datum nisi propter oficinm. Hob. 148. A remuneration [is] not given, unless on account of a duty per- formed.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Great Expectations, 1861]**

Pip is the unknown beneficiary of a fortune administered through Jaggers — enjoying property whose legal handling lies in others' hands. (paraphrase) (paraphrase)

Why: Pip is literature's great beneficiary: one having the enjoyment of property of which a trustee-like figure holds the legal management.

## BENEFIT.

Advantage ; profit ; priv- ilege. Fitch v. Bates, 11 Barb. (N. Y.) 473; Synod of Dakota v. State, 2 S. D. 366, 50

N. W. 632, 14 L. R. A. 418; WInthrop Co. v. Clinton. 196 Pa. 472, 46 Atl. 435, 79 Am. St Rep. 729.

In the law of eminent domain, it ia a role that in assessing damages for private property taken or injnred for public use, “special bene- fits” may be set off against the amount of dam- age found, but not “general benefits.” Within the meaning of this role, general benefits are inch as accrue to the community at large to the vicinage, or to all property similarly situated with reference to the work or improvement in question; while special benefits are such as ac- crue directly and solely to the owner of the land ia question and not to others. little Miami R.

Co. v. Collett. 8 Ohio St. 182; St. Louis, etc., Ry. Co. v. Fowler, 142 Mo. 670, 44 S. W. 771 ; Gray v. Manhattan Ry. Co.. 16 Daly. 510, 12

N. Y. Supp. 542 ; Barr v. Omaha, 42 Neb. 341, 60 N. W. 591.

—Benefit building society. The original name for what is now more commonly called a “building society,” (q. t-.)— Benefit of cession. In the civil law. The release of a debtor from future imprisonment for his debts, which the law operates in his favor upon the surrender of his property for the benefit of his creditors. Poth. Proc. Civil, pt. 5, c. 2, g 1.— Benefit of elergy. In its original sense, the phrase de- noted the exemption which was accorded to cler- gymen from the jurisdiction of the secular courts. or from arrest or attachment on crim- inal process issuing from those courts in. cer- tain particular cases. Afterwards, it meant a privilege of exemption from the punishment of death accorded to such persons as were clerks. or who could read. This privilege of exemp- tion from capital punishment was anciently allowed to clergymen only, but afterwards to all who were connected with the church, even to its most subordinate officers, and at a still later time to all persons who could read, (then, called “clerks,”) whether ecclesiastics or lay- men. It does not appear to have been extend- ed to cases of high treason, nor did it apply to mere misdemeanors. The privilege was claim- ed after the person’s conviction, by a species of motion in arrest of judgment, technically called “praying his clergy.” As a means of testing nis clerical character, he was given a psalm to read, (usually, or always, the fifty- first.) and, upon his reading it correctly, he was turned over to the ecclesiastical courta, to be tried by the bishop or a jury of twelve clerks. These beard him on oath, with his witnesses and compurgators, who attested their belief in his innocence. This privilege operated greatly to

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mitigate the extreme rigor of the criminal lawB, but was found to involve such gross abuses that parliament began to enact that certain crimes should be felonies "without bene- fit of clergy,” and finally, by St. 7 Geo. IV. c. 28, 5 6, it was altogether abolished. The act of congress of April 30. 1790. g 30, provided that there should be no benefit of elergy for any capital crime against the United States, and, if this privilege formed a part of the com- mon law of the several states before the Revo- lution, it no longer exists.— Benefit of discus- sion. In the civil law. The right which a sure- ty has to cause the property of the principal debtor to be applied in satisfaction of the ob- ligation in the first instance. Civ. Code La, arts. 3014-3020. In Scotch law. That whereby the antecedent heir, such as the heir of line in a pursuit against the heir of tailzie, etc., must be first pursued to fulfill the defunct’s deeds and pay his debts. This benefit is likewise compe- tent in many cases to cautioners.— Benefit of division. Same as beneflcium divisionis, Iq. v.) —Benefit of inventory. In the civil law. The privilege which the heir obtains of being liable for the charges and debts of the succes- sion, only to the value of the effects of the suc- cession, by causing an inventory of these effects within the time and manner prescribed by law. Civil Code La. art. 1032. — Benefit soeietles. Under this and several similar names, in vari- ous states, corporations exist to receive periodi- cal payments from members, and hold them as a fund to be loaned or given to members needing pecuniary relief. Such are beneficial societies of Maryland, fund associations of Mis- souri, loan and fund associations of Massa- chusetts, mechanics’ associations of Michigan, protection societies of New Jersey. Friendly societies in Great Britain, are a still more ex- tensive and important species belonging to this claBs. Comm. v. Equitable Ben. Ass’n, 137 Pa. 412, 18 Ati. 1112; Com. v. Aid Ass’n, 94 Pa. 489.

5e apparatus — Carried into the 5th edition (1979).

## BENERTH.

A feudal service rendered by the tenant to his lord with plow and cart. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## BENEVOLENCE.

The doing a kind or helpful action towards another, under no obligation except an ethical one.

Is no doubt distinguishable from the words “liberality” and "charity for, although many charitable institutions are very properly called “benevolent.” it is impossible to say that every object of a man’s benevolence is also an ob- ject of his charity. James v. Allen. 3 Mer. 17 ; Pell v. Mercer, 14 It. I. 443 : Murdock v. Bridges, 91 Me. 124. 39 Atl. 475.

In public law. Nominally a voluntary gratuity given by subjects to their king, but In reality a tax or forced loan.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for

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God loveth a cheerful giver.

Why: The entry defines benevolence as doing a kind or helpful action toward another under no obligation except an ethical one. 2 Corinthians 9:7 describes giving 'not grudgingly, or of necessity' but as purposed in the hea...

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

Scrooge, converted, spends Christmas morning doing kind acts under no obligation but a new ethical one. (paraphrase) (paraphrase)

Why: The entry's definition almost paraphrases Scrooge's conversion: kindness done under no obligation except an ethical one.

## BENEVOLENT.

Philanthropic; hu- mane ; having a desire or puri»ose to do good to men ; Intended for the conferring of benefits, rather than for gain or profit.

This word is certainly more indefinite, and of far wider range, than “charitable” or “reli- gious:" it would include all gifts prompted by good-will or kind feeling towards the recipient, whether an object of charity or not. The nat- ural and usual meaning of the word would so ex- tend it. It has no legal meaning separate from its usual meaning. ‘'Charitable” has acquired a set- tled limited meaning in law, which confines it within known limits. But in all the decisions in England on the subject it has tieen held that a devise or bequest for benevolent objects, or in trust to give to such objects, is too indefinite, and therefore void. Norris v. Thomson, 19 N.

J. Eq. 313 ; Thomson v. Norris. 20 N. J. Eq. 523: Suter v. Hilliard, 132 Mass. 413. 42 Am. Hep. 444 ; Fox v. Gibbs, SC Me. 87. 29 Atl. 94it. This word, as applied to objects or pur- poses. may refer to those which are in tlieir nature charitable, nnd may also have a broader meaning and include objects and purposes not charitable in the legal sense of that word. Acts of kindness, friendship, forethought, or good- will might properly be described as benevolent. It has therefore been held that gifts to trustees to be applied for “benevolent purposes” at their discretion, or to such "benevolent purpos- es" as they could agree upon, do not create a public charity. But where the word is used in connection with other words explanatory of its meaning, and indicating the intent of the donor to limit it to purposes strictly charitable, it has been held to be synonymous with, or equivalent to. “charitable.” Suter v. Hilliard, 132 Mass. 412. 42 Am. Hep. 444; De Camp v. I lobbins, 31 N. J. Eq. 095 : Chamberlain v. Stearns. Ill Mass. 2(>8; Goodale v. Mooney. 00

N. H. 535, 49 Am. Hep. 334.

— Benevolent associations. Those having a philanthropic or charitable purpose, as distin- guished from such as are conducted for profit : specifically, “benefit associations” or “beneficial associations." See Benefit.—: Benevolent so- cieties. In English law. Societies establish- ed and registered under the friendly societies act, 1875. for any charitable or benevolent pur- poses.

Benlgne faclendse snnt Interpreta- tions! chartamm, nt res magls valeat qnam per eat; et quae libet concesslo for- tissime contra donatorem interpretanda eat. Liberal interpretations are to be made of deeds, so that the purpose may rather stand than fall ; and every grant is

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to be

taken most strongly against the grantor. Wallis v. Wallis. 4 Mass. 135, 3 Am. Dec. 210; Hayes r. Kershow, 1 Sandf. Ch. (N. X.) 258. 268.

Benlgne faclendse snnt lnterpreta- tlones, propter ^Implloitatem laicomm, nt res magia valeat qnam pereat. Con- structions [of written instruments] are to be made liberally, on account of the simplicity of the laity, [or common people,] In order that the thing [or subject-matter] may rath- er have effect than perish, [or become void.] Co. Litt. 36a; Broom, Max. 540.

Benlgnior sententia in verbis gener- alibns sen dnbiis, est pr referenda. 4

Coke, 15. The more favorable construction is to be placed on general or doubtful ex- pressions.

Benlgnlns leges interpretandre snnt qno voluntas carom conservetur. Laws

are to be more liberally Interpreted, in order that their intent may be preserved. Dig. 1, 3, 18.

5e apparatus — Not carried into the 5th edition (1979).

## BEQUEATH.

To give personal property by will to another. Lasher v. Lasher, 13 Barb. (N. T.) 100.

This word is the proper term for a testamen- tary gift of personal property only, the word "devise” being used with reference to real es- tate ; but if the context clearly shows the in- tention of the testator to use the word as synon- ymous with “devise,” it may be held to pass real property. Dow v. Dow, 36 Me. 216 ; Borg- ner v. Brown, 133 I mi. 391. 33 N. E. 92 ; Lo- gan v. Logan. 11 Colo. 44, 17 Par. 99: Laing v. Barbour, 119 Mass. 525: Scliolle v. Scholle, 113 N. V. 261. 21 N. E. 84; In re Fetrow’s Estate. 58 Pa. 427 : Ladd v. Harvey, 21 N. H. 528 ; Evans v. Price, 118 111. 593, 8 N. E. 854.

5e apparatus — Not carried into the 5th edition (1979).

## BEQUEST.

A gift by will of personal property ; a legacy.

A specific bequest is one whereby the tes- tator gives to the legatee all his property of a certain class or kind; as all his pure per- sonalty.

A rexiduaru bequest is a gift of all the re- mainder of the testator’s iiersnnal estate, after payment of debts and legacies, etc.

An crccntorp bequest is the bequest of a future, deferred, or contingent Interest In personalty.

A conditional bequest Is one the taking effect or continuing of which depends upon th'' happening or mm-occurrence of a par- tic. Jar event. Mitchell v. Mitchell, 143 Ind. 113. 42 N. E. 405 ; Fnrnam v. Farnam, 53 Conn. 261. 2 Atl. 325. 5 Atl. 682: Merrill v. College. 74 Wis. 415, 43 N. W. 304.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: The entry defines a bequest as a gift by will of personal property. Hebrews 9:16-17 states the essence of the testamentary gift: it takes force only after the testator's death. Author's exposition, not deity speech. (...

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1853]**

Jarndyce and Jarndyce — the Chancery suit over a will that consumes the very bequest in costs. (paraphrase) (paraphrase)

Why: The great fictional bequest: a gift by will of personal property, devoured by the court meant to administer it.

## BERCARIA.

In old English law, a sheepfold: also a place where the bark of trees was laid to tan.

BERCARIUS, or BERCATOR. A shep- herd.

BEREWICHA, or BEREWIOA. In old

English law. A term used in Domesday for a village or hamlet belonging to some town or manor.

5e apparatus — Not carried into the 5th edition (1979).

## BERGHMAY8TER.

An officer having charge of a mine. A bailiff or chief officer among the Derbyshire miners, who, in addi- tion to his other duties, executes the office of coroner among them. Blount; Cowell.

BEBGHMOTH, orBERGHMOTE. The

ancient name of the court now called “bar- - mote.” ( q . v.)

BEB.NET. In Saxon. law. Burning; the crime of house burning, now called “arson.” Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BERRA.

In old law. A plain; open heath. Cowell.

BERRY, or BURY. A villa or seat of habitation of a nobleman; a dwelling or mansion house; a sanctuary.

5e apparatus — Not carried into the 5th edition (1979).

## BERTUXON SYSTEM.

A method of anthropometry, used chiefly for the identlfl- catlon of criminals and other persons, con- sisting of the taking and recording of a sys- tem of numerous, minute, and uniform measurements of various parts of the human body, absolutely and in relation to each oth- er. the facial, cranial, and other angles, aud of any eccentricities or abnormalities

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no- ticed in the lhdlvldual.

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## BERTON.

A large farm; the barn-yard of a large farm.

5e apparatus — Not carried into the 5th edition (1979).

## BES.

Lat. In the Roman law. A di- vision of the an, or pound, consisting of eight under, or duodecimal parts, and amounting to two-thirds of the an. 2 Bl. Comm. 462, note m.

Two-thirds of an inheritance. Inst. 2, 14. 5.

Eight per cent. Interest. 2 Bl. Comm, ubl supra.

BE8AH1E, BESAYljb. The great-grand- father. proavus. 1 Bl. Comm. 186.

BESAYEL, Beaaiel, Beuyle. In old

English law*. A writ which lay where a great- grandfather died seised of lands and tene- ments in fee-simple, and on the day of his death a stranger abated, or entered and kept out the heir. Reg. Orig. 226; Fitzh. Nat. Brev. 221 D; 3 Bl. Comm. 186.

5e apparatus — Carried into the 5th edition (1979).

## BEST EVIDENCE.

Primary evidence, as distinguished from secondary; original, as distinguished from substitutionary ; the best and highest evidence of which the na- ture of the case is susceptible. A written in- strument is itself always regarded as the primary or best possible evidence of its ex- Bl.Law Dict.(2d Ed.)— 8

istence and contents ; a copy, or the recollec- tion of a witness, would lie secondary evi- dence. State v. McDonald, 65 Me. 467 ; El- liott v. Van Buren, 33 Mich. 53, 20 Am. Rep. 668 ; Scott v. State, 3 Tex. App. 104 ; Gray v. Pentland, 2 Serg. & R. (Pa.) 34; U. S. Sugar Refinery v. Allis Co., 56 Fed. 786, 6

C. C. A. 121 ; Manhattan Malting Co. v. Sweteland, 14 Mont. 269, 36 Pac. 84.

5e apparatus — Carried into the 5th edition (1979).

## BESTIAUTY.

Bestiality is the carnal knowledge and connection against the order of nature by man or woman in any manner with a beast. Code Ga. 1882, § 4354.

We take it that there is a difference in sig- nification between the terms “bestiality," and the “crime against nature.” Bestiality is a connec- tion between a human being and a brute of the opposite sex. Sodomy is a connection between two human beings of the same sex, — the male,-— named from the prevalence of the sin in Sodom. Both may be embraced by the term “crime against nature,” as felony embraces murder, larceny, etc., though we think that term is more generally used in reference to sodomy. Buggery seems to include both sodomy ana bestiality. Ausman v. Veal. 10 Ind. 356, 71 Am. Dec. 331.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 18:23, KJV]**

Neither shalt thou lie with any beast to defile thyself therewith: neither shall any woman stand before a beast to lie down thereto: it is confusion.

Why: BESTIAUTY (bestiality) was a capital crime at common law; Black's 2e treats it as a felony offense. Leviticus 18:23 is the direct scriptural prohibition of the act, within the holiness code's catalogue of forbidden un...

## BET.

An agreement between two or more persons that a sum of money or other valu- able thing, to which all Jointly contribute, shall become the sole property of one or some of them on the happening in the future of an event at present uncertain, or accord- ing as a question disputed between them is settled in one way or the other. Harris v. White, 81 N. Y. 532; Rich v. .State, 38 Tex. Cr. R. 199. 42 S. W. 291, 38 E. R. A. 719; Jacobus v. Hazlett. 78 111. App. 241 ; Shaw v. Clark, 49 Mich. 384, 13 N. W. 786, 43 Am. Rep. 474; Alvord v. Smith, 63 Ind. 62.

Bet and wager are synonymous terms, and are applied both to the contract of belting or wagering and to the thing or sum bet or wagered. For example, one bets or wagers, or lays a bet or wager of so much, upon a cer- tain result. But these terms cannot properly be applied to the act to be done, or event to happen, upon which the bet or wager is laid. Bets or wagers may be laid upon acts to be done, events to happen, or facts existing or to exist The bets or wagers may be illegal, and the acts, events, or facts upon which they are laid may not be. Bets or wagers may be laid upon games, and things that are not games. Everything upon which a bet or wager may be laid is not a game. Woodcock v. Motto eon. 11 Ind. 16 : Shumate v. Com., 15 Grat. 660 ; Har- ris v. White, 81 N. Y. 539.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Anton Chekhov, 'The Bet,' 1889]**

A banker bets a young lawyer two million rubles that he cannot endure fifteen years of solitary confinement — and the lawyer takes the wager. (paraphrase) (paraphrase)

Why: The story IS a bet in the entry's sense: a sum to become one party's on the happening of an uncertain future event.

## BETROTHMENT.

Mutual promise of marriage; the plighting of troth; a mutual promise or contract between a man and wo- man competent to make it, to marry at' a future time.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Hosea 2:19, KJV]**

And I will betroth thee unto me for ever; yea, I will betroth thee unto me in righteousness, and in judgment, and in lovingkindness, and in mercies.

Why: BETROTHMENT is the engagement contract, the solemn promise of marriage to come. Hosea 2:19 uses

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betrothal itself as the very image of covenant: God's first-person pledge to Israel in the language of a wedding engageme…

**[Humanity] — Humanity / Fiction & Film**

**[Alessandro Manzoni, The Betrothed, 1827]**

Renzo and Lucia, the betrothed, whose mutual promise of marriage the novel's whole machinery conspires to delay. (paraphrase) (paraphrase)

Why: The title names the entry: a mutual promise between a man and woman to marry at a future time.

## BETTER EQUITY.

See Equity.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## BETTERMENT.

An improvement put upon an estate which enhances its value more than mere repairs. The term is also applied to denote the additional value which an estate acquires in consequence of some public improvement, as laying out or widen- ing a street, etc. French v. New York, 16

How. Prac. (N. Y.) 220; Abell v. Brady, 79 Md. 94, 28 AO. 817; Chase v. Sioux City, 86 Iowa, 60S, 63 N. W. 333.

—Betterment note. Statutes which provide that a bona fide occupant of real estate making lasting improvements in good faith shall have a lien upon the estate recovered by the real owner to the extent that his improvements have increased the value of the land. Also called “occupying claimant acts.” Jones T. Hotel Co., 86 Fed. 386. 30 C. C. A. 108.

5e apparatus — Carried into the 5th edition (1979).

## BETWEEN.

As a measure or indication of distance, this word has the effect of ex- cluding the two termini. Revere v. Leonard, 1 Mass. 93; State v. Godfrey, 12 Me. 366. See Morris & E. R. Co. v. Central R. Co., 31

N. J. Law, 212.

If an act Is to be done “between" two cer- tain days, It must be performed before the commencement of the latter day. In com- puting the time In such a case, both the days named are to be excluded. Richardson v. Ford, 14 111. 333 ; Bunoe v. Reed, 16 Barb. (N. Y.) 352.

In case of a devise to A. and B. “between them,” these words create a tenancy in com- mon. Lashbrook v. Cock, 2 Mer. 70.

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## BEVERAGE.

This term Is properly used to distinguish a sale of liquors to be drunk for the pleasure of drinking, from liquors to be drunk In obedience to a physician’s ad- vice. Com. v.

Mandeville, 142 Mass. 469, 8

N. E. 327.

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## BEWARED.

O. Eng. Expended. Be- fore the Britons and Saxons had introduced the general use of money, they traded chiefly by exchange of wares. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## BEYOND SEA.

Beyond the limits of the kingdom of Great Britain and Ireland; out- side the United States; out of the state.

Beyond sea, beyond the four seas, beyond the seas, and out of the realm, are synonymous. Prior to the union of the two crowns of Eng- land and Scotland, on the accession of James I., the phrases “beyond the four seas,” “beyond the seas,” and “out of the realm,” signified out of the limits of the realm of England. Pan- coast's Lessee v. Addison, 1 Har. & J. (Md.) 350, 2 Am. Dec. 520.

In Pennsylvania, it has been construed to mean “without the limits of the United States," which approaches the literal signification. Ward v. Ilallam, 2 Dali. 217. 1 L. Ed. 355; Id.. 1 Yeates (Pa.) 329; Green v. Neal. 6 Pet 291, 300, 8 L. Ed. 402. The same con- struction has been given to it in Missouri.

Keeton’s Heirs v. Keeton’s Adm’r, 20 Mo. 530. See Ang. Lim. §8 200, 201.

The term “beyond seas,” in the proviso or sav- ing clause of a statute of limitations, is equiv- alent to without the limits of the state where the statute is enacted ; and the party who is without those limits is entitled to the benefit of the exception. Faw V. Roberdeau. 3 Cranch, 174, 2 L. Ed. 402; Murray v. Baker, 3 Wheat

541, 4 L. Ed. 454 ; Shelby v. Guy, 11 Wheat.

361. 6 L. Ed. 405: Piatt v. Vattier, 1 Mc- Lean, 146, Fed. Cas. No. 11,117: Forbes’

Adm’r v. Foot's Adm’r. 2 McCord (S. C.l 331, 13 Am. Dec. 732 : Wakefield v. Smart, 8 Ark. 488; Denham v. Holeman, 20 Ga. 182, 71 Am. Dec. 198; GaluBha v. Cobleigh, 13 N. H. 79.

5e apparatus — Not carried into the 5th edition (1979).

## BIAS.

Inclination; bent; prepossession; a preconceived opinion; a predisposition to decide a cause or an issue in a certain way, which does not leave the mind perfectly open to conviction. Maddox v. State, 32 Ga. 587, 79 Am. Dec. 307; Pierson v. State, 18 Tex. App. 558; Hinkle v. State, 94 Ga. 595, 21 S. B. 601.

This term is not synonymous with “preju- dice.” By the use of this word in a statute. de- claring disqualification of jurors, the legisla- ture intended to describe another and somewhat different ground of disqualification. A man cannot be prejudiced against another without being biased against him ; but he may be biased without being prejudiced. Bias is

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“a particular influential power, which sways the judgment ; the inclination of the mind towards a particu- lar object.” It is not to be supposed that the legislature expected to secure in the juror a state of mind absolutely free from all inclina- tion to one side or the other. The. statute means that, although a juror has not formed a judgment for or against the prisoner, before the evidence is heard on the trial, yet, if he is under such an influence as so sways his mind to the one side or the other as to prevent his deciding the cause according to the evidence, he is in- competent. Willis v. State, 12 Ga. 444.

Actual bias consists in the existence of a state of mind on the part of the juror which satisfies the court, in the exercise of a sound discretion, that the juror cannot try the issues impartially and without prejudice to the sub- stantial rights of the party challenging. State v. Chapman, 1 S. D. 414, 47 N. W. 411, 10 L.

R. A. 432 ; People v. MicQuade. 110 N. Y. 284. 18 N. E. 156, U.R.A. 273 ; People v. Wells, 100 Cal. 227, 34 Pac. 718.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 7:24, KJV]**

Judge not according to the appearance, but judge righteous judgment.

Why: BIAS in legal usage is the prejudgment that disqualifies a judge or juror. Jesus' command is the direct condemnation of judging by outward appearance rather than righteousness — the scriptural definition of the impart...

**[Humanity] — Humanity / Fiction & Film**

**[Director: Sidney Lumet, 12 Angry Men, 1957]**

Twelve jurors' prepossessions are tested one by one until only the evidence is left standing. (paraphrase) (paraphrase)

Why: A film about the entry itself: predispositions that do not leave the mind perfectly open to conviction, examined juror by juror.

## BED.

An offer by an Intending purchaser to pay a designated price for property which Is about to be sold at auction. U. S. v. Vest- al (D. C.) 12 Fed. 59 ; Payne v. Cave, 3 Term, 149; Eppes v. Railroad Co., 35 Ala. 56.

—Bid In. Property sold at auction is said to be “bid in" by the owner or an incumbrancer or some one else who is interested in it, when he attends the sale and makes the successful bid.— Bid off. One is said to “bid off” a thing when be bids for it at an auction sale, and it is knocked down to him in immediate succes- sion to the bid and as a consequence of it. Ep- pes v. Railroad Co., 35 Ala. 56; Doudna v. Harlan, 45 Kan. 484, 25 Pac. 883.— Bidder. One who offers to pay a specified price for an article offered for sale at a public auction. Webster v. French. 11 111. 254.— Biddings. Offers of a designated price for goods or other property put up for sale at auction. — By-bid- ding. In the law relating to sales by auction, this term is equivalent to ^‘puffing.” _ The prac- tice consists in making fictitious bids for the property, under a secret arrangement with the owner or auctioneer, for the purpose of mis- leading and stimulating other persons who are bidding in good faith.— Upset bid. A bid made after

a judicial sale, but before the suc- cessful bid at the sale has been confirmed, larger or better than such successful bid, and made for the purpose of upsetting the sale and securing to the “upset bidder” the privilege of taking the property at his bid or competing at a new sale. Yost v. Porter, 80 Va. 858.

BIDAL, or BID ALL. An invitation of friends to drink ale at the house of some poor man, who hopes thereby to be relieved by charitable contribution. It is something like “house-warming,” i. e„ a visit of friends

to a person beginning to set op house-keep- ing. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## BIELBRIEF.

Germ. In European mari- time law. A document furnished by the builder of a vessel, containing a register of her admeasurement, particularizing the length, breadth, and dimensions of every part of the ship. It sometimes also contains the terms of agreement between the party for whose account the ship Is built, and the ship-builder. It has been termed in English the “grand bill of sale In French, “contrat de construction ou de la vente d’un vaisseau,” and corresponds In a great degree with the English, French, and American “register,” (9. v.,) being an equally essential document to the lawful ownership of vessels. Jac. Sea Laws, 32, 13, and note. In the Danish law, it Is used to denote the contract of bottomry.

5e apparatus — Not carried into the 5th edition (1979).

## BIEHES.

Sp. In Spanish law. Goods; property of every description, including real as well as personal property; all things (not being persons) which may serve for the uses of man. Larkin v. U. 8., 14 Fed. Cas. 1154.

— Biene* comnxie*. Common property ; those things which, not being the private property of any person, are open to the use of ail, such aa the air, rain, water, the sea and its beaches. Lux v. Haggin, 69 Cal. 255, 315, 10 Pac. 707.— Biases gaiumeiales. A species of community in property enjoyed by husband and wife, the property being divisible equally between them on the dissolution of the marriage ; does not in- clude what they held as their separate property at the time of contracting the marriage. Weld- er v. Lambert, 91 Tex. 510, 44 S. W. 281.— Biene* publico*. Those things which, as to property, pertain to the people or nation, and, as to their use, to the individuals of tbe terri- tory or district, such as rivers, shores, ports, and public roads. Lux v, Haggin, 69 Cal. 315, 10 Pac. 707.

5e apparatus — Not carried into the 5th edition (1979).

## BIENWIAIXY.

This term, in a statute, signifies, not duration of time, but a period for the happening of an event ; once in every two years. People v. Tremain, 9 Hun (N. Y.) 576; People v. Kilbourn, 68 N. Y. 479.

5e apparatus — Not carried into the 5th edition (1979).

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## BUSES.

Is English law. Property of every description, except estates of freehold and Inheritance. Sugd. Vend. 495; Co. Litt. 1196.

In French law. This term includes all kinds of property, real and personal. Biens are divided Into biens mcublcs, movable prop- erty; and biens immeubles, immovable prop- erty. The distinction between movable and immovable property is recognized by the con- tinental jurists, and gives rise, in the civil ns well as in the common law, to many Impor- tant distinctions as to rights and remedies. 8tory, Confl. Laws, | 13, note 1,

BIGA, or BIGATA. A cart or chariot drawn with two horses, coupled side to side: but it Is said to be properly a cart with two wheels, sometimes drawn by one horse; and

in the ancient records it is used for any cart, wain, or wagon. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## BXGAMUS.

In the civil law. A man who was twice married; one who at differ- ent times and successively has married two wives. 4 Inst 88. One who has two wives living. One who marries a widow.

Blgamus sea trigamus, etc., eat qui di- ▼er*l* temporihu* et racctnivi duaa sell tre* nxore* habuit. 4 Inst. 88. A blgamus or trigamus, etc., is one who at different times and successively has married two or three wives.

5e apparatus — Not carried into the 5th edition (1979).

## BIGAMY.

The criminal offense of will- fully and knowingly contracting a second marriage (or going through the form of a second marriage) while the first marriage, to the knowledge of the offender, Is still sub- sisting and undissolved. Com. v. McNerny, 10 Phlla. (Pa.) 207; Gise v. Com., 81 Pa. 430; Scoggins v. State, 32 Ark. 213; Cannon v. TJ. S-. 116 D. S. 55, 6 Sup. Ct 287, 29

L. Ed. 561.

The state of a man who has two wives, or of a woman who has two husbands, living at the same time.

The offense of having a plurality of wives at the same time Is commonly denominated "polygamy;" but the name “bigamy” has been more frequently given to It in legal proceed- ings. 1 Russ. Crimes, 185.

The use of the word “bigamy” to describe this offense is well established by long usage, al- though often criticised as a corruption, of the true meaning of the word. Polygamy is sug- gested as the correct term, instead of bigamy, to designate the offense of having a plurality of wives or husbands at the same time, and has been adopted for that purpose in. the Massa- chusetts statutes. But as the substance of the offense is marrying a second time, while hav- ing a lawful husband or wife living, without re- gard to the number of marriages that may have taken place, bigamy seems not an inappropriate term. Tbe objection to its

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use urged by Black- stone (4 Bl. Comm. 163) seems to be founded not so much upon considerations of the etymol- ogy of the word as upon the propriety of distin- guishing the ecclesiastical offense termed “biga- my” in the canon law, and which is defined be- low. from the offense known as “bigamy” in the modern criminal law. The same distinction is carefully made by Lord Coke, (4 Inst. 88.) But, the ecclesiastical offense being now obsolete, this reason for substituting polygamy to denote the crime here defined ceases to have weight. Abbott.

In the canon law, the term denoted the offense committed by an ecclesiastic who married two wives successively. It might be committed either by marrying a second wife after the death of a first or by marrying a widow.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 7:2-3, KJV]**

So then if, while her husband liveth, she be married to another man, she shall be called an adulteress: but if her husband be dead, she is free from that law; so that she is no adulteress, though she be married to another man.

Why: BIGAMY — marrying again while a prior marriage subsists — is exactly the case Paul dissects: a woman bound by the marriage law to her husband while he liveth, an 'adulteress' if married to another while he lives, free...

**[Humanity] — Humanity / Fiction & Film**

**[Charlotte Brontë, Jane Eyre, 1847]**

Jane's wedding is halted by the revelation that Rochester is already wed — to Bertha Mason, living and undissolved. (paraphrase) (paraphrase)

Why: The most famous fictional bigamy: a second marriage contracted while the first subsists to the offender's knowledge.

## BIGOT.

An obstinate person, or one that is wedded to an opinion, in matters of re- ligion, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596–1598]**

Antonio's Christian contempt and Shylock's answering plea — 'Hath not a Jew eyes?' — dramatize religious bigotry from both sides of the wound. (paraphrase) (paraphrase)

Why: The entry's 'one obstinately wedded to an opinion in religion' is the play's engine; paraphrased because the speech could not be certified verbatim throughout.

## BILAGINES.

By-laws of towns; munic- ipal laws.

5e apparatus — Not carried into the 5th edition (1979).

## BILAN.

A term need 1b Louisiana, de- rived from the French. A book In which bankers, merchants, and traders write a statement of all they owe and all that la due them; a balance-sheet. See

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Dauphin v. Son- lie, 3 Mart (N. S.) 446.

BILANCnS DEFERENDIS. In Eng- lish law. An obsolete writ addressed to a corporation for the carrying of weights to such a haven, there to weigh the wool an- ciently licensed for transportation. Reg. Orig. 270.

5e apparatus — Not carried into the 5th edition (1979).

## BILATERAL CONTRACT.

A term, used originally in the civil law, but now gen- erally adopted, denoting a contract in which both the contracting parties are bound to fulfill obligations reciprocally towards each other; as a contract of sale, where one be- comes bound to deliver the thing sold, and the other to pay the price of lb Montpelier Seminary v. Smith, 69 Vt 382, 38 AO. 66.

“Every convention properly so called consists of a promise or mutual promises proffered and accepted. Where one only of the agreeing par- ties gives a promise, the convention is said to be ‘unilateral.’ Wherever mutual promises are proffered and accepted, there are, in strictness, two or more conventions. But where the per- formance of either of the promises is made to depend on the performance of the other, the several conventions are commonly deemed one convention, and the convention is then said to be 'bilateral.' ” Aust. Jur. $ 308.

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**[Scripture] — Scripture**

**[Exodus 19:5, KJV]**

Now therefore, if ye will obey my voice indeed, and keep my covenant, then ye shall be a peculiar treasure unto me above all people: for all the earth is mine

Why: A bilateral contract is an exchange of promises — offer and acceptance. The Sinai covenant is its archetype: God offers terms ('if ye will obey my voice indeed, and keep my covenant, then ye shall be a peculiar treasu...

## BILGED.

In admiralty law and marine insurance. That state or condition of a ves- sel in which water is freely admitted through holes and breaches made in the planks of the bottom, occasioned by injuries, whether the ship’s timbers are broken or not. Peele v. Insurance Co., 3 Mason, 27, 39, 19 Fed. Cas. 103.

5e apparatus — Not carried into the 5th edition (1979).

## BILINE.

A word used by Britton in the sense of “collateral.’’ En line bilinc, in the collateral line. Britt c. 119.

5e apparatus — Not carried into the 5th edition (1979).

## BILING1TIS.

Of a double language or tongue; that can speak two languages. A term applied in the old books to a Jury com- posed partly of Englishmen and partly of foreigners, which, by the English law, an alien party to a suit is, in certain cases, en- titled to; more commonly called a “Jury de meiiietate lingua;." 3 Bl. Comm. 360 ; 4 Steph. Comm. 422.

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5e apparatus — Not carried into the 5th edition (1979).

**BILL.**

A formal declaration, complaint, or statement of particular things in writing. As a legal term, this word has many mean- ings and applications, the more important of which are enumerated below.

1. A formal written statement of com- plaint to a court of Justice.

In the ancient practice of the court of king’s bench, the usual and orderly method of beginning an action was by a bill, or orig- inal bill, or plaint. This was a written statement of the plaintiff’s cause of action, like a declaration or complaint, and always alleged a trespass as the ground of It, in order to give the court jurisdiction. 3 Bl. Comm. 43.

In Scotch law, every summary applica- tion in writing, by way of petition to the Court of Session, is called a “bill." Cent. Diet

— Bill chamber. In Scotch law. A depart- ment of the court of session in which petitions for suspension, interdict, etc., are entertained. It is equivalent to sittings in chambers in the English and American practice. Paters. Comp. —Bill of privilege. In old English law. A method of proceeding against attorneys -and of- ficers of the court not liable to arrest. 3 Bl. Comm. 289.— Bill of proof. In English prac- tice. The name given, in the mayor’s court of London, to a species of intervention by a third person laying claim to the subject-matter in dispute between the parties to a suit.

2. A species of writ; a formal written declaration by a court to its officers, in the nature of process,

—Bill of Middlesex. An old form of pro- cess similar to a capiat, issued out of the court of king’s bench in personal actions, directed to the sheriff of the county of Middlesex, (hence the name,) and commanding him to take the defend- ant and have him before the king at Westmin- ster on a day named, to answer the plaintiff’s complaint State v. Mathews, 2 Brev. (S. C.) 83: Sims v. Alderson, 8 Leigh (Va.) 484.

3. A formal written petition to a superior court for action to be taken in a cause al- ready determined, or a record or certified account of the proceedings in such action or some portion thereof, accompanying such a petition.

— Bill of advocation. In Scotch practice. A bill by which the judgment of an inferior court is appealed from, or brought under review of a superior. Bell. — BJ11 of certiorari. A bill, the object of which is to remove a suit in equity from some inferior court to the court of chan- cery, or some other superior court of equity, on account of some alleged incompetency of the inferior court, or some injustice in its pro- ceedings. Story, Eq. Pl. (5th Ed.) $ 298.— Bill of exceptions. A formal statement in writ- ing of the objections or exceptions taken by a party during the trial of a cause to the decisions, rulings, or instructions of the trial judge, stat- ing the objection, with the facts and circum- stances on which it is founded, and, in order to attest its accuracy, signed and sealed by the judge; the object being to put the controverted rulings or decisions upon the record for the in- formation of the appellate

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court. Ex parte Crane, 5 Pet. 193. 8 L. Ed. 92 ; Galvin v. State. 56 Ind. 56: Coxe v. Field, 13 N. J. Law, 218; Sackett v. McCord, 23 Ala. 854.

4. In equity practice. A formal written complaint, in the nature of a petition, ad- dressed by a suitor in chancery to the chan- cellor or to a court of equity or a court having equitable jurisdiction, showing the names of the parties, stating the facts which make up the case and the complainant's alle- gations, averring that the acts disclosed are contrary to equity, and praying for process and for specific relief, or for such relief as the circumstances demand. U. S. v. Am- brose. 108 V. 8. 336. 2 Sup. Ct 682. 27 L. Ed. 746 ; Feeney v. Howard, 79 Cai. 325, 2J

Pae. 984, 4 L. R. A. 826, 12 Am. St. Rep. 162; Sharon v. Sharon, 67 Cal. 185, 7 Pac. 456.

Bills are said to be original, not original, or In the nature of original bills. They are original when the circumstances constituting the case are not already before the court, and relief is de- manded, or the bill is filed for a subsidiary purpose.

—Bill for a now trial. A bill in equity in which the specific relief asked is an injunction against the execution of a judgment rendered at law and a new trial in the action, on account of some fact which would render it inequitable to enforce the judgment, but which was not available to the party on the trial at law, or which he was prevented from presenting by fraud or accident, without concurrent fraud or negligence on his own part.— Bill for foreclo- sure. One which is filed by a mortgagee against the mortgagor, for the purpose of having the estate sold, thereby to obtain the sum mortfaged on the premises, with interest and costs.

Madd. Ch. Pr. 528.— BUI in nature of a Mil of review. A bill in equity, to obtain a re-examination and reversal of a decree, filed by one who was not a party to the original suit, uor bound by the decree.— Bill in nature of a Mil of revivor. Where, on the abatement of a suit, there is such a transmission of the interest of the incapacitated party that the title to it. as well as the person entitled, may be the subject of litigation in a court of chancery, the suit cannot be continued by a mere bill of re- vivor, but an original bill upon which the title may be litigated must be filed. This is called a "bill in the nature of a bill of revivor." It is founded on privity of estate or title by the act of the party. And the nature and operation of the whole act by which the privity is created is open to controversy. Story, Eq. PI. 88 378-380 ; 2 Amer. & Eng. Enc. Law, 271.— BUI In na- ture of a supplemental bill. A bill filed when new parties, with new interests, arising from events happening since the suit was com- menced, are brought before the court ; wherein it differs from a supplemental bill, which is properly applicable to those cases only where the same parties or the same interests remain before the court. Story, Eq. Pi. (5th Ed.) 8 345 et seq.— BUI of conformity. One filed by an executor or administrator, who finds the affairs of the deceased so much involved that be cannot safely administer the estate except under the direction of a court of chancery. This bill is filed against the creditors, generally, for the purpose of having all their claims adjusted, and procuring a final decree settling the order of payment of the assets. 1 Story, Eq. Jur. 8 440.— BUI of discovery. A bill in equity filed to obtain a discovery of facts

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resting in the knowledge of the defendant, or of deeds or writ- ings. or other things in his custody or power. Story. Eq. Pi. (5th Ed.) 8 311; Wright v. Su- perior Court, 139 Cal. 469, 73 Pac. 145; Ever- son v. Assur. Co. (C. C.) 68 Fed. 258: State v. Savings Co., 28 Or. 410, 43 Pac. 162— B1U of information. Where a suit is instituted on behalf of the crown or government, or of those of whom it has the custody by virtue of its prerogative, or whose rights are under its par- ticular protection, the matter of complaint is offered to the court by way of information by the attorney or solicitor general, instead of by petition. Where a suit immediately concerns the crown or government alone, the proceeding is purely by way of information, but, where it does not do so immediately, a reiator is appoint- ed, who is answerable for costs, etc., and, if he is interested in the matter in connection with the crown or government, the proceeding is by information and bill. Informations differ from hills in little more than name and form, and the same rules are substantially applicable to both. See Story, Eq. PI. 5; 1 Daniell, Ch. Pr.

2. 8, 288 ; 3 Bl. Comm. 261.— BUI of inter- pleader. The name of a bill in equity to ob- tain a settlement of a question of right to money or other property adversely claimed, in which the party filing the bill has no interest, although it may be in his hands, by compelling such ad- verse claimants to litigate the right or title be- tween themselves, and relieve him from liability or litigation. Van Winkle v. Owen, 54 N. J. Eq. 253, 34 Atl. 400; Wakeman v. Kingsland, 48 N. J. Eq. 113, 18 Atl. 680 ; Gibson v. Gold- thwaite, 7 Ala. 281, 42 Am. Dec. 692.— BUI of peace. One which is filed when a person has a right which may be controverted by various persons, at different times, and by different ac- tions. Ritchie v. Dorland. 6 Cal. 33 ; Murphy v. Wilmington, 6 Houst. (Del.) 108, 22 Am. St. Rep. 345 ; Eldridge v. Hill, 2 Johns. Ch. (N. Y.) 281: Randolph v. Kinney, 3 Rand. (Va.) 395.— BUI of revivor. One which is brought to continue a suit which has abated before its final consummation, as, for examnte, by death, or marriage of a female plaintiff. Clarke v. Mathewson, 12 Pet. 164, 9 L. Ed. 1041; Brooks v. Laurent, 98 Fed. 647. 39 C. O. A. 201.— BUI of revivor sad supplement. One which is a compound of a supplemental bill and bill of revivor, and not only continues the suit, which has abated by the death of the plaintiff, or the like, but supplies any defects in the original bill arising from subsequent events, so as to entitle the party to relief on the whole merits of his case. Mitf. Eq- Pi. 32, 74; Wcstcott v. Cady, 5 Johns. Ch. (N. Y.) 342, 9 Am. Dec. 306; Bowie v. Minter, 2 Ala. 411.— BUI of review. One which is brought to have a de- cree of the court reviewed, corrected, or revers- ed. Dodge v. Northrop, 85 Mich. 243, 48 N.

W. 505.— BUI qnla timet. A bill invoking the aid of equity "because he fears," that is, because the complainant apprehends an injury to his property rights or interests, from the fault or neglect of another. Such bills are en- tertained to guard against possible or prospective injuries, and to preserve the means by which existing rights may be protected from future or contingent violations ; differing from injunc- tions, in that the latter correct past and present or imminent and certain injuries. . Bisp. Eq. 8 568 ; 2 Story, Eq. Jur. 8 826; Bailey v. South- wick. 6 Cans. (N. Y.) 364; Bryant v. Peters. 3 Ala. 169 ; Itandolph v. Kinney, 3 Rand. (Va.) 398.— Bill to carry a deoree Into execu- tion. One which is filed when, from

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the neg- lect of parties or some other cause, it may be- come impossible to carry a decree into execution without the further decree of the court. Hind, Ch. Pr. 68; Story, Eq. Pl. 8 42.— BUI to per- petuate testimony. A bill in equity filed in order to procure the testimony of witnesses to be taken as to some matter not at the time be- fore the courts, but which is likely at some future time to be in litigation. Story, Eq. Pl. (5th Ed.) 8 300 et seq. — BUI to suspend a de- cree. One brought to avoid or suspend a de- cree under special circumstances.— Bill to take testimony de bene esse. One which is brought to take the testimony of witnesses to a fact material to the prosecution of a suit at law which is actually commenced, where there is good cause to fear that the testimony may otherwise be lost before the time of trial. 2 Story, Eq. Jur. 8 1813. n.— Cross-bill. One which is brought by a defendant in a suit against a plaintiff in or against other defendants in the same suit, or against both, touching the matters in question in the original bill. Story, Eq. Pl. 8 389; Mitf. Eq. Pl. 80. A cross-bill is a bill brought by a defendant against a plaintiff, or other parties in a former bill depending, touching the matter in question in that bill, it is usually brought either to obtain a necessary discovery of facts in aid of the defense to the original bill, or to obtain full relief to all par- ties in reference to the matters of the original bill. It is to be treated ns a mere auxiliary suit. Shields v. Barrow, 17 How. 144, 15 L. Ed. 158 ;

Kidder v. Barr, 35 N. H. 251 ; Blythe v. Hinck- ley (C. C.) 84 Fed. 234. A croes-bill is a species of pleading, used for the purpose of obtaining a discovery necessary to the defense, or to ob- tain some relief founded on the collateral claims of the party defendant to the original suit. Tison v. Tison, 14 Ga. 187. Also, if a bill of exchange or promissory note be given in consid- eration of another bill or note, it is called a •"cross” or "counter” bill or note.

5. In legislation and constitutional law, the word means a draft of an act of the leg- islature before it becomes a law ; a proposed or projected law. A draft of an act pre- sented to the legislature, but not enacted. An act is the appropriate term for it, after It has been acted on by, and passed by, the legislature. Southwark Bank v. Comm., 26 Fa. 450 ; Sedgwick County Com’rs v.- Bailey, 13 Kan. 608; May v. Rice, 91 Ind. 549; State v. Hegeman, 2 Pennewill (Del.) 147, 44 Atl. 621. Also a special act passed by a leg- islative body in the exercise of a quasi Ju- dicial power. Thus, bills of attainder, bills of pains and penalties, are spoken of.

—BUI at attainder, see Attain deb. — Bill of indemnity. In English law. An act of parlia- ment, passed every session until 1869, but dis- continued in and after that year, as having been Tendered unnecessary by the passing of the promissory oaths act, 1868, for the relief of those who have unwittingly or unavoidably neg- lected to take the necessary oaths, etc., required for the purpose of qualifying them to hold thedr respective offices. Wharton. — Bill of pains and penalties. A special act of the legisla- ture which inflicts a punishment, less than death, upon persons supposed to be guilty of treason or felony, without any conviction in the ordinary course of judicial proceedings. It dif- fers from a bill of attainder in this: that the punishment inflicted by the latter is death.— Private bill. All legislative bills which have for their object some particular or private in- terest are so termed, as distinguished from

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such as are for the benefit of the whole community, which are thence termed “public bills.” See People v. Chautauqua County, 43 N. Y. 17. — Private bill office. An office of tbe Eng- lish parliament where tbe business of obtaining private acts of parliament is conducted.

6. A solemn and formal legislative dec- laration of popular rights and liberties, promulgated on certain extraordinary occa- sions, as the famous Bill of Rights in Eng- lish history.

— -Bill of rights. A formal and emphatic leg- islative assertion and declaration of popular rights and liberties usually promulgated upon a change of government ; particularly the stat- ute 1 W. & M. St. 2, c. 2. Also the summary of the rights and liberties of the people, or of the principles of constitutional law deemed es- sential and fundamental, contained in many of the American state constitutions.— Eason v. State, 11 Ark. 491 ; Atchison St. R. Co. v. Mis- souri Pac. R. Co.. 31 Kan. 661, 3 Pac. 284; Orr v. Quimby, 54 N. H. 613.

7. In the law of contracts, an obligation ; a deed, whereby the obligor acknowledges himself to owe to the obligee a certain sum of money or some other thing. It may be Indented or poll, and with or without a pen- alty.

— Bill obligatory. A bond absolute for the payment of money, it is called also a "single

bill.” and differs from a promissory note only in having a seal. — Bank v. Greiner, 2 Serg. &

H. (Pa.) 115.— Bill of debt. An ancient term including promissory notes and bonds for the payment of money. Com. Dig. “Merchant,” F. 2.— Bill penal. A written obligation by which a debtor acknowledges himself indebted in a certain sum, and binds himself for the payment thereof, in a larger sum, called a “penalty.” —BUI single. A written promise to pay to a person or persons named a stated sum at a stated time, without any condition. When un- der Real, as is usually the case, it is sometimes called a “bill obligatory,” (q. v.) It differs from a “bill penal,” (g. v.,) in that it expresses no penalty.

8. In commercial law. A written state- ment of the terms of a contract, or specifica- tion of the items of a transaction or of a demand; also a general name for any item of indebtedness, whether receivable or pay- able.

-Bill-book. In mercantile law. A book in which an account of bills of exchange and prom- issory notes, whether payable or receivable, is stated.— Bill-head. A printed form on which merchants and traders make out their bills and render accounts to their customers.— BUI of lading. In common law. The written evidence of a contract for the carriage and delivery of goods sent by sea for a certain freight. Mason v. Lickbarrow, 1 H. Bl. 359. A written mem- orandum, given by the person in command of a merchant vessel, acknowledging tbe receipt on board the ship of certain specified goods, in good order or “apparent good order,” which he undertakes, in consideration of the payment of freight, to deliver in like good order (dangers of the sea excepted) at a designated place to the consignee therein named or to his assigns. De- vato v. Barrels (D. G.) 20 Fed. 510; Gage v. Jaqueth. 1 Lans. (N. Y.) 210; The Delaware. 14 Wall. 600, 20 L. Ed. 779. The term is often applied to a similar receipt and undertaking given by a carrier of goods by land. A bill of lading fs an instrument in writing, signed by a carrier or his agent, describing the freight so as to identify it, stating the name of the con- signor, the terms of the contract for carriage, and agreeing or directing that the

freight be delivered to the order or assigns of a specified person at a specified place. Civil Code Cal. 4 2126; Civil Code Dak. f 1229.— BUI of par- cels. A statement sent to the buyer of goods, along with tbe goods, exhibiting in detail tbe items composing the parcel and their several prices, to enable him to detect any mistake or omission ; an invoice.— BUI of sale. In con- tracts. A written agreement under seal, by which one person assigns or transfers his right to or interest in goods and personal chattels to. another. An Instrument by which, in par- ticular, the property in ships and vessels is conveyed. Putnam v. McDonald. 72 Vt. 4, 47 Atl. 159; Young v. Stone. 61 App. Div. 364. 70 N. Y. Supp. 558.— BUI payable. In a merchant’s accounts, all bills which he has ac- cepted, and promissory notes which be has made, are called “bills payable," and are entered in a ledger account under that name, and recorded in a book bearing the same title.— BUI receiv- able. In a merchant's accounts, all notes, drafts, checks, etc., payable to him, or of which he is to receive the proceeds at a future date, are called “bills receivable." and are entered in a ledger-account under that name, and also noted in a book bearing the same title. State v. Robinson, 57 Md- 501.— BUI rendered. A bill of items rendered by a creditor to his debtor; an “account rendered,” as distinguished from “an account stated." Hill v. Hatch, 11 Me. 435. — Grand bill of sale. In English law. The uame of an instrument used for the transfer of a ship while she is at sea. An expression which

is understood to refer to the Instrument where- by a ship was originally transferred from the builder to the owner, or first purchaser. 3 Kent, Comm. 133.

9. In the law of negotiable instruments. A promissory obligation for the payment of money.

Standing alone or without qualifying words, the term is understood to mean a bank note, United States treasury note, or other piece of paper circulating as money. Green v. State, 28 Tex. App. 493. 13 S. W. 785; Keith v. Jones, 9 Johns. (N. Y.) 121 ; Jones v. Fates, 4 Mass. 252.

—Bill of exchange. A written order from

A. to B., directing B. to pay to C. a certain sum of money therein named. Byles, Bills, 1. An open (that is, unsealed) letter addressed by one person to another directing him, in effect, to pay, absolutely and at all events, a certain sum of money therein ngmed, to a third person, or to any other to whom that third person may order it to be paid, or it may be payable to bearer or to the drawer himself. 1 Daniel, Keg. Inst. 27. A bill of exchange is an instrument, nego- tiable in form, by which one, who is called the “drawer,” requests another, called the “drawee,” to pay a specified sum of money. Civil Code Oal. | 3171. A bill of exchange is an order by one person, called the “drawer” or “maker,” to another, called the “drawee” or “acceptor,” to pay money to another, (who may be the drawer himself,) called the "payee,” or his or- der, or to the bearer. If the payee, or a bearer, transfers the bill by indorsement, he then be- comes the “indorser.” If the drawer or drawee resides out of this state, it is then called a “foreign bill of exchange.” Code Ga. 1882, f 2773.— Bill of credit. In constitutional law. A bill or promissory note issued by the govern- ment of a state or nation, upon its faith and credit, designed to circulate in the community as money, and

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redeemable at a future day. Briscoe v. Bank of Kentucky, 11 Pet. 271, 9

L. Ed. 709; Craig v. Missouri, 4 Pet. 431, 7

L. Ed. 903; Hale v. Huston, 44 Ala. 138, 4 Am. Bep. 124. In mercantile law. A license or authority given in writing from one pereon to another, very common among merchants, bank- ers, and those who travel, empowering a person to receive or take up money of their cor- respondents abroad.— Domestic bill of ex- ekuge. A bill of exchange drawn on a per- son residing in the same state with the drawer; or dated at a place in the state, and drawn on a person living within the state. It is the residence of the drawer and drawee which must determine whether a bill is domestic or foreign. Ragsdale v. Franklin, 25 Miss. 143.— Foreign Uu of exchange. A bill of exchange drawn in one state or country, upon a foreign state or country. A bill of exchange drawn in one country upon another country not governed by the same homogeneous laws, or not governed throughout by the same municipal laws. A bill of exchange drawn in one of the United States upon a person residing in another state is a foreign bill. See Story, Bills, j 22; 3 Kent. Comm. 94. note ; 'Buckner v. Finley, 2 Pet 586, 7 L. Ed. 528; Duncan v. Course, 1 Mill, Const. (S. O.) 100 ; Phcenix Bank v. Hus- sey, 12 Pick. (Mass.) 484.

10. In maritime law. The term is applied to contracts of various sorts, but chiefly to bills of lading (see supra ) and to bills of ad- venture (see infra.)

— Bill of adventure. A written certificate by a merchant or the master or owner of a ship, to the effect that the property and risk in goods shipped on the vessel in his own name belong to another person, to whom he is accountable for the proceeds alone.— Bill of gross adventure. In French maritime law. Any written instrument which contains a contract of bottomry, respondentia, or any other kind of maritime loan. There is no corresponding English term. Hall, Marit. Loans, 182, n. —Bill of health. An official certificate, given by the authorities of a port from which a vessel clears, to the master of the ship, showing the state of the port, as respects the public health, at the time of sailing, and exhibited to the au- thorities of the port which the vessel next makes, in token that she does not bring disease. If the bill alleges that no contagious or infections disease existed, it is called a “clean” bill ; if it admits that one was suspected or anticipated, or that one actually prevailed, it is called a. “touched” or a “foul” bill.

11. In revenue law and procedure, the term is given to various documents filed in or issuiug from a custom house, principally of the sorts described below.

—Bill of entry. An account of the goods entered at the custom house, both incoming and outgoing. It must state the name of the mer- chant exporting or importing, the quantity and species of merchandise, and whither transport- ed, and whence. — Bill of sight. When an im- porter of goods is ignorant of their exact quan- tity or quality, so that he cannot make a per- fect entry of them, be may give to the customs officer a written description of them, 'according to the best of his information and belief. This is called a “bill of sight.”— Bill of store. In English law. A kind of license granted at the custom-house to merchants, to carry such stores and provisions as are necessary for their voy- age, custom free. Jacob.— Bill of

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sufferance. In English law. A license granted at the cus- tom-house to a merchant, to suffer him to trade from one English port to another, without pay- ing custom. Cowell.

12. In criminal law, a bill of indictment, see infra.

-Bill of indictment. A formal written

document accusing a person or persons named of having committed a felony or misdemeanor, law- fully laid before a grand jury for their action upon it. If the grand jury decide that a trial ought to be had, they indorse on it "a true bill;" if otherwise, “not a true bill” or "not found.”— State v. Ray, Rice (S. C.) 4, 33 Am. Dec. 90. — Bill of appeal. An ancient, but now abolished, method of criminal prosecution. See Battel.

13. In common-law practice. An Itemized statement or specification of particular de- tails, especially items of cost or charge.

—Bill of costs. A certified, itemized state- ment of the amount of costs in an action or suit. Doe v. Thompson, 22 N. H. 219. By the Eng- lish usage, this term is applied to the statement of the charges and disbursements of an attor- ney or solicitor incurred in the conduct of his client's business, and which might be taxed upon application, even though not incurred in any suit. Thus, conveyancing costs might be taxed. Wharton.— BUI of particulars. In practice. A written statement or specification of the par- ticulars of the demand for which an action at law is brought, or of a defendant’s set-off against such demand, (including dates, sums, and items in detail,) furnished by one of the parties to the other, either voluntarily or in compliance with a judge’s order for that purpose. 1 Tidd, Pr. 596-600 ; 2 Archb. Pr. 221 ; Ferguson v. Ash bell, 53 Tex. 250; Baldwin v. Gregg, 13 Mete. (Mass.) 255.

14. In English law, a draft of a patent for a charter, commission, dignity, office, or appointment

Such a bill is drawn up in the attorney gen- eral’s patent bill office, is submitted by a secre- tary of state for the King’s signature, when it is called the “King’s bill.” and is then counter- signed by the secretary of state and sealed by the privy seal, and then the patent is prepared and sealed. Sweet.

BIX. LA. h. Lat. A bill ; an original bill.

— Billa excambli. A bill of exchange.— Bills exoneratlonia. A bill of lading.— BUla vers. <A true bill.) In old practice. The indorse- ment anciently made on a bill of indictment by a grand jury, when they found it sufficiently sustained by evidence. 4 Bl. Comm. 306.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Frank Capra, Mr. Smith Goes to Washington, 1939]**

A young senator's filibuster against a corrupt appropriations bill — holding the floor so the bill cannot pass. (paraphrase) (paraphrase)

Why: The classic film about a legislative bill: its drafting, its corruption, and its defeat by parliamentary courage.

## BILLA CASSETUR, or QUOD BILLA / CASSETUR.

(That the bill be quashed.) In practice. The form of the Judgment ren- dered for a defendant on a plea in abate- ment, where the proceeding is by bill; that is, where the suit is commenced by capias, and not by. original writ. 2 Archb. Pr. K.

B. 4.

5e apparatus — Not carried into the 5th edition (1979).

## BILLET.

A soldier’s quarters in a civil- ian’s house; or the ticket which authorizes him to occupy them.

In French law. A bill or promissory note. Billet d ordre, a bill payable to order. Bil- let d true, a bill payable at sight. Billet do complaisance, an accommodation bill. Bil- let de change, an engagement to give, at a future time, a bill of exchange, which the party is not at the time prepared to give. Story, Bills, $ 2, n.

5e apparatus — Carried into the 5th edition (1979).

## BXLLETA.

In old English law. A bill or petition exhibited in parliament. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BI-METALLIC.

Pertaining to. or con- sisting of, two metals used as money at a fixed relative value.

5e apparatus — Not carried into the 5th edition (1979).

## BI-METALLISM.

The legalized use of two metnls in the currency of a country at a fixed relative value.

5e apparatus — Not carried into the 5th edition (1979).

## BIND.

To obligate; to bring or place under definite duties or legal obligations, particularly by a bond or covenant ; to affect one in a constraining or compulsory manner with a contract or a judgment. So long as a contract, nn adjudication, or a legal rela- tion remains in force and virtue, and con- tinues to impose duties or obligations, it is said to be “binding." A man is bound by his contract or promise, by a judgment or decree against him, by his bond or covenant, by an estoppel, etc. Stone v. Bradbury, 14 Me. 193 ; Holmes v. Tutton, 5 El. & Bl. 80 ; Bank v. Ireland, 127 N. C. 238, 37 S. E. 223; Doug- las v. Henuessy, 15 R. I. 272, 10 Atl. 5.83.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: BIND in its legal sense — to lay oneself under an enforceable obligation — is here in the verse's own vocabulary: 'to bind his soul with a bond,' with the corollary that he 'shall not break his word.' The verse is the...

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## BIND OUT.

To place one under a legal obligation to serve another; as to bind out an apprentice.

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## BINDING OVER.

The act by which a court or magistrate requires a person to en- ter into a recognizance or furnish bail to ap- pear for trial, to keep the peace, to attend as a witness, etc.

5e apparatus — Carried into the 5th edition (1979).

## BIPARTITE.

Consisting of, or divisible into, two parts. A term in conveyancing de- scriptive of an instrument in two parts, and ■executed by both parties.

5e apparatus — Not carried into the 5th edition (1979).

## BIRRETUM, BIRRETUS.

A cap or

coif used formerly in England by judges and serjeants at law. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## BIRTH.

The act of being born or wholly brought into separate existence. Wallace v. State, 10 Tex. App. 270.

5e apparatus — Carried into the 5th edition (1979).

## BIS.

Lat Twice.

Bis idem exigi bona fide* non patitur; et in satisfactlonibns non permittitur amplins fieri qnam semel factum est.

Good faith does not suffer the same thing to be demanded twice; and in making satisfac- tion [for a debt or demand] It is not al- lowed to be done more than once. 9 Coke, 53.

5e apparatus — Not carried into the 5th edition (1979).

## BISAXLE.

The father of one's grand- father or grandmother.

5e apparatus — Not carried into the 5th edition (1979).

## BISANTIUM, BESANTINE, BEZANT.

An ancient coin, first issued at Constantino- ple ; it was of two sorts, — gold, equivalent to a ducat, valued at 9s. 6d. ; and silver, com- puted at 2s. They were both current in England. Wharton.

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## BI-SOOT.

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In old English law. A fine Imposed for not repairing banks, ditches, and causeways.

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## BISHOP.

In English law. An ecclesias- tical dignitary, being the chief of the clergy within his diocese, subject to the archbishop of the province in which his diocese is sit- uated. Most of the bishops are also mem- bers of the House of Lords.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:1-2, KJV]**

This is a true saying, If a man desire the office of a bishop, he desireth a good work. A bishop then must be blameless, the husband of one wife, vigilant, sober, of good behaviour, given to hospitality, apt to teach;

Why: The entry BISHOP covers the ecclesiastical office and its qualifications (also civilly cognizable in church courts and offices). 1 Timothy 3:1-2 is the classic charter of the office: the bishop as 'good work' with a s...

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

The Bishop of Digne receives the convict Valjean, feeds him, and gives him the silver candlesticks with his blessing. (paraphrase) (paraphrase)

Why: The great literary bishop — an ecclesiastical dignitary whose office in the novel is mercy itself.

## BISHOPRIC.

In ecclesiastical law. The diocese of a bishop, or the circuit in which he has jurisdiction; the office of a bishop. 1 Bl. Comm. 377-382.

5e apparatus — Not carried into the 5th edition (1979).

## BISHOP’S COURT.

In English law. An ecclesiastical court, held In the cathedral of each diocese, the judge whereof is the bishop’s chancellor, who judges by the civil canon law ; and, if the diocese be large, he has his commissaries in remote parts, who hold consistory courts, for matters limited to them by their commission.

5e apparatus — Carried into the 5th edition (1979).

## BISSEXTILE.

The day which Is added every fourth year to the mouth of February,

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In order to make the year. agree with the course of the son.

Leap year, consisting of 366 days, and happening every fourth year, by the addi- tion of a day In the month of February, which In that year consists of twenty-nine days.

BLACK ACRE and WHITE ACRE.

Fictitious names applied to pieces of land, and used as examples In the old books.

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5e apparatus — Not carried into the 5th edition (1979).

## BLACK ACT.

The statute 9 Geo. I. c. 22, so called because It was occasioned by the outrages committed by persons with their faces blacked or otherwise disguised, who appeared in. Epplng Forest, near Waltham, In Essex, and destroyed the deer there, and committed other offenses. Repealed by 7 & 8 Geo. XV. C. 27.

5e apparatus — Carried into the 5th edition (1979).

## BLACK ACTS.

Old Scotch statutes passed In the reigns of the Stuarts and down to the year 1586 or 1587, so called because printed in black letter. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## BLACK BOOK OF HEREFORD.

In

English law. An old record frequently re- ferred to by Cowell and other early writers.

5e apparatus — Not carried into the 5th edition (1979).

## BLACK BOOK OF THE ADMIRALTY.

A book of the highest authority In ad- miralty matters, generally supposed to have been compiled during the reign of Edward

III. with additions of a later date. It con- tains the laws of Oleron, a view of crimes and ofTenses cognizable in the admiralty, and many other matters. See DeLovio v. Bolt, 2 Gall. 404, Fed. Cas. No. 3,776. UER. The name of an ancient book kept in the English exchequer, containing a collec- tion of treaties, conventions, charters, etc.

. BLACK CAP. The head-dress worn by the judge in pronouncing the sentence of death. It is part of the judicial full dress, and Is worn by the judges on occasions of especial state. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## BLACK CODE.

A name given collec- tively to the body of laws, statutes, and rules In force in various southern states prior to 1865, which regulated the institu- tion of slavery, and particularly those for- bidding their reception at public Inns and on public conveyances. Civil Bights Cases, 109 U. S. 3, 3 Sup. Ct. 18, 27 L. Ed. 835.

5e apparatus — Carried into the 5th edition (1979).

## BLACK GAME.

In English law. Heath fowl, in contradistinction to red game, as grouse.

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## BLACK-LIST.

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A list of persons marked out for special avoidance, antagonism, or en- mity on the part of those who prepare the

list or those among whom it is intended to circulate; as where a trades-union “black- lists” workmen who refuse to conform to its rules, or where a list of insolvent or untrust- worthy persons is published by a commercial agency or mercantile association. Masters v. Lee, 39 Neb. 574, 58 N. W. 222; Mattlson v. Railway Co., 2 Ohio N. P. 279.

BLACK-MAIL. 1. In one of its origi- nal meanings, this term denoted a tribute paid by English dwellers, along the Scottish border to influential chieftains of Scotland, as a condition of seenring immunity from raids of marauders and border thieves.

2. It also designated rents payable in cat- tle, grain, work, and the like. Such rents were called “black-nuiil,” (reditus nigri,) In distinction from white rents, [blanche firmes,) which were rents paid in silver.

3. The extortion of money by threats or overtures towards criminal prosecution or the destruction of a man's reputation or so- cial standing.

In common parlance, the tern is equivalent to, and synonymous with, "extortion,”— the exaction of money, either for the performance of a duty, the prevention of an injury, or the exercise of an influence. It supposes the service to be unlaw- ful, and the payment involuntary. Not infre- quently it is extorted by threats, or by operat- ing upon the fears or the credulity, or by prom- ises to conceal, or offers to expose, the weak- nesses, the follies, or the crimes of the victim. Edsail v. Brooks, 3 Rob. (N. V.) 284. 17 Abb. l’rac. 221; Life Ass’n v. Boogher. 3 Mo. App. 173 ; Hess v. Sparks, 44 Kan. 465, 24 Pac. 979, 21 Am. St. Rep. 300; People v. Thompson. 97

N. Y. 313; Utterback v. State, 153 Ind. 545, 55 N. E. 420; Mitchell v. Sharon (C. C.) 51 Fed. 424.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: George Clooney, Good Night, and Good Luck, 2005]**

Murrow's broadcasts against McCarthy unfold as the Hollywood blacklist marks men for avoidance and enmity. (paraphrase) (paraphrase)

Why: A film of the blacklist era: persons marked out for special avoidance and antagonism by those who circulate the list.

## BLACK MARIA.

A closed, wagon or van in which prisoners are carried to and from the Jail, or between the court and the jail.

5e apparatus — Carried into the 5th edition (1979).

## BLACK RENTS.

In old English law. Rents reserved in work, grain, provisions, or baser money, in contradistinction to those which were reserved in white money or sil- ver, which wer^ termed "white rents,” ( reditus albi ,) or blanch farms. Tomlins; Whishaw.

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5e apparatus — Carried into the 5th edition (1979).

# O

**OF.**

In England, the title of a chief officer of the king, deriving his name from the Black Rod of office, on the top of which re- poses a golden lion, which he carries.

5e apparatus — Carried into the 5th edition (1979).

# B

**BLACK  WARD.**

A subvassal, who held ward of the king’s vassal.

5e apparatus — Carried into the 5th edition (1979).

**BLACKLEG.**

A person who gets his liv- ing by frequenting race-courses and places where games of chance are played, getting the best odds, and giving the least be can, but not necessarily cheating. That is not indictable either by statute or at common law. Barnett v. Alien, 3 IlurL A N. 379.

8LADA

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

**BLADA.**

In old English law. Growing crops of grain of any kind. Spelman. All manner of annual grain. Cowell. Harvested grain. Bract. 2176; Reg. Orig. 946, 95.

5e apparatus — Not carried into the 5th edition (1979).

**BLAU ABIUS.**

In old English law. A corn-monger ; meal-man or corn-chandler; a bladier, or engrosser of corn • or grain. Blount

5e apparatus — Not carried into the 5th edition (1979).

**BLANC  BEIGN.**

In Louisiana, a paper signed at the bottom by him who intends to bind himself, give acquittance, or compro- mise, at the discretion of the person whom he Intrusts with such blano seign, giving him power to All it with what he may think prop- er, according to agreement. Musson v. C. S. Bank, 6 Mart O. S. (La.) 718.

5e apparatus — Not carried into the 5th edition (1979).

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## BLANCH HOLDING.

An ancient ten- ure of the law of Scotland, the duty payable being trifling, as a penny or a pepper-corn, etc., if required ; similar to free and common socage.

5e apparatus — Not carried into the 5th edition (1979).

## BLANCHE FIR ME.

White rent; a rent reserved, payable in silver.

5e apparatus — Carried into the 5th edition (1979).

## BLANCOS.

In old law and practice. White; plain; smooth; blank.

5e apparatus — Not carried into the 5th edition (1979).

## BLANK.

A space left unfilled in a writ- ten document, in which one or more words or marks are to be inserted to complete the sense. Angle v. Insurance Co., 92 U. S. 337, 23 L. Ed. 556.

Also a skeleton or printed form for any legal document, In which the necessary and Invariable words are printed In their proper order, with blank spaces left for the insertion of such names, dates, figures, additional clauses, etc., as may be necessary to adapt the Instrument to the particular case and to the design of the party using it

— Blank acceptance. An acceptance of a bill of exchange written on the paper before the bill is made, and delivered by the acceptor.— Blank bar. Also called the "common bar.” The name of a plea in bar which in an ac- tion of trespass is put in to oblige the plaintiff to assign the certain place where the trespass was committed. It was most in practice in the common bench. See Cro. Jac. 594.— Blank bonds. Scotch securities, in which the cred- itor's name was left blank, and which passed by mere delivery, the bearer being at liberty to put in hiB name and sue for payment. Declared void by Act 1696, c. 25. — Blank indorsement. The indorsement of a bill of exchange or prom- issory note, by merely writing the name of the indorser, without mentioning any person to whom the bill or note is to be paid ; called "blank,” because a blank or space is left over it for the insertion of the name of the indorsee, or of any subsequent holder. Otherwise called an indorsement “in blank.” 3 Kent, Comm. 89; Story, Prom. Notes, § 138.

5e apparatus — Carried into the 5th edition (1979).

## BLANKET POLICY.

Iu the law of fire

Insurance. A policy which contemplates that the risk is shifting, fluctuating, or varying, and is applied to a class of property, rather than to any particular article or thing. 1

Wood, Ins. | 40. See Insurance Co. v. Balti- more Warehouse Co., 93 U. S. 541, 23 L. Ed. 808; Insurance Co. v. Landau, 62 N. J. Eq. 73, 49 Atl. 738.

5e apparatus — Carried into the 5th edition (1979).

## BLANKS.

A kind of white money, (val- ue Sd.,) coined by Henry V. in those parts of France which were then subject to England ; forbidden to be current in that realm by 2 Hen. VI. a 9. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## BLASARITT8.

An incendiary.

5e apparatus — Not carried into the 5th edition (1979).

## BLASPHEMY.

la English law. Blas- phemy is the offense of speaking matter re- lating to God, Jesuq Christ, the Bible, or the Book of Common Prayer, intended to wound the feelings of mankind or to excite contempt and hatred against the church by law estab- lished, or to promote Immorality. Sweet.

In American law. Any oral or written reproach maliciously cast upon God, His name, attributes, or religion. Com. v. Knee- land, 20 Pick. (Mass.) 213; Young v. State, 10 Lea (Tenn.) 165; Com. v. Spratt, 14 Phlla. (Pa.) 365 ; People v. Ruggles, 8 Johns. (N. Y.) 290, 5 Am. Dec. 335; Updegraph v. Com., 11 Serg. & R. (Pa.) 406 ; 2 Blsh. Cr. Law, g 76; Pen. Code Dak. § 31.

In general, blasphemy may be described as con- sisting in speaking evil of the Deity with an impious purpose to derogate from the divine majesty, and to alienate the minds of others from the love and reverence of God. It is pur- posely using words concerning Go'd calculated and designed to impair and destroy the rever- ence, respect, and confidence due to Him as the intelligent creator, governor, and judge of the world. It embraces the idea of detraction, when used towards the Supreme Being, as “calumny” usually carries the same idea when applied to an individual. It is a willful and malicious at- tempt to lessen men’s reverence of God by deny ing His existence, or His attributes as an intel- ligent creator, governor, and judge of men, and to prevent their having confidence in Him as such. Com. v. Kneeland, 20 Pick. (Mass.) 211, 212.

The use of this word is, in modern law exclusively confined to sacred subjects; but blasphemia and blasphemare were anciently used to signify the reviling by one person of another. Nov. 77, c. 1, g 1; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 24:16, KJV]**

And he that blasphemeth the name of the LORD, he shall surely be put to death, and all the congregation shall certainly stone him: as well the stranger, as he that is born in the land, when he blasphemeth the name of the LORD, shall be put to death.

Why: BLASPHEMY — 'speaking evil of the Deity' — entered English and American criminal law as an offense; Leviticus 24:16 is the direct scriptural criminalization of the same act, blaspheming the name of the LORD, with the...

**[Humanity] — Humanity / Fiction & Film**

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**[Directors: Terry Jones, Monty Python's Life of Brian, 1979]**

In the stoning pit, a man is condemned for uttering the name 'Jehovah' — blasphemy as a capital offense, played straight enough to sting. (paraphrase) (paraphrase)

Why: A literal dramatization of blasphemy law: malicious reproach upon God's name punished by the community — satire aimed at the offense itself.

## BLEES.

In old English law. Grain ; par- ticularly com.

5e apparatus — Not carried into the 5th edition (1979).

## BLENCH, BLENCH HOLDING.

See

Blanch Holding.

5e apparatus — Not carried into the 5th edition (1979).

## BLENDED FUND.

In England, where a testator directs his real and personal estate to be sold, and disposes of the proceeds as forming one aggregate, this is called a “blended fund.”

5e apparatus — Carried into the 5th edition (1979).

## BLIND.

One who is deprived of the sense or faculty of sight. See Pol. Code Cal. 1903, { 2241.

5e apparatus — Not carried into the 5th edition (1979).

## BLINKS.

In old English law. Boughs broken down from trees and thrown in a way where dear are likely to pass. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## BLOCK.

A square or portion of a city or town inclosed by streets, whether par- tially or wholly occupied by buildings' or containing only vacant lots. Ottawa v. Bar- ney, 10 Kan. 270; Fraser v. Ott, 05 Cal. 661, 30 Pac. 793; State v. Deffes, 44 La. Ann. 164, 10 South. 597 ; Todd v. Railroad Co., 78 111. 530; Harrison v. People, 193 111. 466, 63 N. E. 191.

5e apparatus — Carried into the 5th edition (1979).

## BLOCK OF SURVEYS.

In Pennsylva- nia land law. Any considerable body of contiguous tracts surveyed in the name of the same warrantee, without regard to the manner in which they were originally lo- cated; a body of contiguous tracts located by exterior lines, but not separated from each other by interior lines. JMorrison v. Seaman, 183 Pa. 74, 38 Atl. 710; Ferguson ▼. Bloom, 144 Pa. 549, 23 Atl. 49.

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## BLOCKADE.

In international law. A marine Investment or beleaguering of a town or harbor. A sort of eircumvallntlon round a place by which all foreign connection and correspondence is, as far as human power can effect It, to be cut off. 1 C. Rob. Adm. 151. It is not necessary, however, that the place should be invested by land, as well as by sea, in order to constitute a legal block- ade; and, if a place be blockaded by sea only, it is no violation of belligerent rights for the neutral to carry on commerce with it by inland communications. 1 Kent, Comm. 147.

The actual investment of a port or place by a hostile force fully competent, under ordinary cir- cumstances, to cut off all communication there- with, so arranged or disposed as to be able to apply its force to every point of practicable ac- cess or approach to the port or place so invest- ed. Bouvfer; The Olinde Rodrigues (D. C.) 91 Fed. 274 ; Id., 174 U. S. 510, 19 Sup. Ct. 851, 43 L. Ed. 1065; U. S. v. The William Arthur, 28 Fed. Cas. 624; The Peterhoff, 6 Wall. 50, 18 L. Ed. 564 ; Grinnan v. Edwards, 21 W. Vo. 347.

It is called a “blockade de facto" when the usual notice of the blockade has not been given to the neutral powers by the govern- ment causing the investment, in consequence of which the blockading squadron has to warn off all approaching vessels.

—Paper blockade. The state of a line of coast proclaimed to be under blockade in time of war, when the naval force on watch is not sufficient to repel a real attempt to enter.— Pab- lle blockade. A blockade which is not only es- tablished in fact, but is notified, by the govern- ment directing it, to other governments ; as dis- tinguished from a timplc blockade, which may be established by a naval officer acting upon his own discretion or under direction of superiors, without governmental notification. The Circas- sian. 2 Wall. 150, 17 L. Ed. 796.— Simple blockade. One established by a naval com- mander acting on bis own discretion and re- sponsibility, or under the direction of a superi- or officer, but without governmental orders or notification. The Circassian, 2 Wall. 130, 17 L. Ed. 796.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Margaret Mitchell, Gone with the Wind, 1936; film 1939, Director: Victor Fleming]**

Rhett Butler the blockade-runner slips the Union's marine investment of Confederate ports to bring in goods. (paraphrase) (paraphrase)

Why: Exact sense-match: a marine beleaguering of harbors cutting off foreign connection, and the runner who defies it.

## BLOOD.

Kindred; consanguinity; fam- ily relationship ; relation by descent from a

common ancestor. One person is “of tho blood” of another when they are related by lineal descent or collateral kinship. Miller v. Speer, 38 N. J. Eq. 572; Delnplalne v. Jones, 8 N. J. Law, 346 ; Leigh v. Leigh, 15 Ves. 108 ; Cummings v. Cummings, 146 Mass. 501, 16 N. E. 401 ; Swasey v. Jaques, 144 Mass. 135, 10 N. E. 758, 59 Am. Rep. 65.

—Half-blood. A term denoting the degree of relationship which exists between those who

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have the same father or the same mother, but not both parents in common.— Mixed blood. A person is “of mixed blood” who is descended from ancestors of different races or nationali- ties ; but particularly, in the United States, the term denotes a person one of whose parents (or more remote ancestors) was a negro. See Hop- kins v. Bowers, 111 N. C. 175, 16 S. E. 1.— Whole blood. Kinship by descent from the same father and mother; as distinguished from half blood, which is the relationship of those who have one parent in common, but not both.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Francis Ford Coppola, The Godfather, 1972]**

The Corleones are bound by blood — kinship by descent as the family's governing law and its curse. (paraphrase) (paraphrase)

Why: Borderline but genuine: the film illuminates 'of the blood' as consanguinity-as-bond, in the figurative register the entry's kinship sense supports.

## BLOOD MONEY.

A weregild, or pe- cuniary mulct paid by a slayer to the rela- tives of his victim.

Also used, in a popular sense, as descrip- tive of money paid by way of reward for the- apprehension and conviction of a person, charged with a capital crime.

5e apparatus — Carried into the 5th edition (1979).

## BLOOD STAINS, TESTS FOR.

See; Preqipitin Test.

5e apparatus — Not carried into the 5th edition (1979).

## BLOOD WIT.

An amercement for blood- shed. Cowell.

The privilege of taking such amercements. Skene.

A privilege or exemption - from paying a fine or amercement assessed for bloodshed. Co well.

5e apparatus — Carried into the 5th edition (1979).

## BLOODY HAND.

In forest law. The having the hands or other parts bloody, which, in a person caught trespassing In the forest against venison, was ohe of the four kinds of circumstantial evidence of his hav- ing killed deer, although he was not found In the act of chasing or hunting. M&nwood-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## BLUE LAWS.

A supposititious code of severe laws for the regulation of religious and personal conduct in the colonies of Con- necticut and New Haven; hence any rigid Sunday laws or religious

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regulations- The assertion by some writers of the existence of the blue laws has no other basis than the adoption, by tbe first authorities of the New Haven colony,- of the Scriptures as their code of law and government, and their strict application of Mosaic principles. Century Diet

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5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

Hester Prynne is punished under Puritan Boston's rigid religious regulation of personal conduct. (paraphrase) (paraphrase)

Why: The novel dramatizes exactly what the entry describes: severe colonial laws regulating religious and personal conduct.

## BOARD.

A committee of persons organ- ized under authority of law in order to exer- cise certain authorities, have oversight or control of certain matters, or discharge cer- tain functions of a magisterial, representa- tive, or fiduciary character. Thus, “board

of aldermen.’’ “board of health,” “board of directors,” “board of works.”

Also lodging, food, entertainment, fur- nished to a guest at an inn or boarding- house.

—Board of aldermen. The governing body of a municipal corporation. Oliver v. Jersey City, 63 N. J. Law, 96, 42 Atl. 782. See Al- debmen.— Board of audit. A tribunal pro- vided by statute in some states, to adjust and settle the accounts of municipal corporations. Osterhoudt v. Rigney, 98 N. Y. 222.— Board of civil authority. In Vermont, in the case of a city this term includes the mayor and aldermen and justices residing therein ; in the case of a town, the selectmen and town clerk and the justices residing therein ; in the case of a vil- lage, the trustees or bailiffs and the justices re- siding therein. Vt. St. 1894, 19. 59.— Board of directors. The governing body of a private corporation, generally selected from among the stockholders and constituting in effect a com- mittee of their number or board of trustees for their interests.— Board of equalisation. See Equalization.— Board of fire underwrit- ers. As these exist in many cities, they are unincorporated voluntary associations composed exclusively of persons engaged in the business of fire insurance, having for their object consolida- tion and co-operation in matters affecting the business, such as the writing of uniform policies and the maintenance of uniform rates. Childs v. Insurance Co., 66 Minn. 393, 09 N. TV. 141. 35 L. R. A. 99.— Board of health. A board or commission created by the sovereign author- ity or by municipalities, invested with certain powers and charged with certain duties in rela- tion to the preservation and improvement of the public health. General boards of health are usu- ally charged with general and advisory duties, with the collection of vital statistics, the investi- gation of sanitary conditions, and the methods of dealing with epidemic and other diseases, the quarantine laws, etc. Such are the national board of health, created by act of congress of March 3, 1879, (20 St. at Large, 484.) and the state boards of health created by the legislatures of most of the states. Local boards of

health are charged with more direct and immediate means of securing the public health, and ex- ercise inquisitorial and executive powers in relation to sanitary regulations, offensive nuis- ances, markets, adulteration of food, slaugh- terhouses, drains and sewers, and similar sub- jects. Such boards are constituted in most American cities either by general law, by their charters, or by municipal ordinance, and in England by the statutes, 11 & 12 Viet, c. 63. and 21 & 22 Viet. c. 98, and other acts amending the same. See Gaines v. Waters, 04 Ark. 609, 44 S. W. 353.— Board of pardons. A board created by law in some states, whose function is to investigate all applications for executive clemency and to make reports and rec- ommendations thereon to the governor. — Board of supervisors. Under the system obtaining in some of the northern states, this name is giv- en to an organised committee, or body of offi- cials, composed of delegates from tile several townships in a county, constituting part of the county government, and having special charge of the revenues of the county.— Board of trade. An organization of the principal merchauts, manufacturers, tradesmen, etc., of a city, for the purpose of furthering its commercial interests, encouraging the establishment of manufactures, promoting trade, securing or improving shipping facilities, and generally advancing the prosper- ity of the place ns nn industrial and commercial community. In England, one of the administra- tive departments of government, being a com- mittee of the privy council which is appointed for the consideration of matters relnting to trade and foreign plantations.— Board of works. The name of a board of officers appointed for

the better local management of the English me- tropolis. They have the care and management of all grounds and gardens dedicated to the use of the inhabitants in the metropolis; also the superintendence of the drainage ; also the regu- lation of the street traffic, and, generally, of tha buildings of the metropolis. Brown.

5e apparatus — Carried into the 5th edition (1979).

## BOARDER.

One who, being the inhab- itant of a place, makes a special contract with another person for food with or without lodging. Berkshire Woollen Co. v. l’roctor, 7 Cush. (Mass.) 424.

One who has food and lodging In the house or with the family of another for an agreed price, and usually under a contract intended to continue for a considerable peri- od of time. Ullman v. State, 1 Tex. App. 220, 28 Am. Rep. 405 ; Ambler v. Skinner, 7 Rob. (N. Y.) 561.

The distinction between a guest and a boarder is this: The guest comes and re- mains without any bargain for time, and may go away when he pleases, paying only for the actual entertainment he receives; and the fact that he may have remained a long time in the inn, in this way, does not make him a boarder, instead of a guest. Stewart v. McCready, 24 How. Brae. (N. X.) 62.

5e apparatus — Carried into the 5th edition (1979).

## BOARDING-HOUSE.

A boarding-house is not in common parlance, or in legal mean- ing, every private house

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where one or more boarders are kept occasionally only and upon special considerations. But It is a quasi pub- lic house, where boarders are generally and habitually kept, and which is held out and known as a place of entertainment of that kind. Oady v. McDowell, 1 Lans. (N. Y.) 486.

A boarding-house is not nn inn, the distinction being that a boarder is received into a house by a voluntary contract, whereas an innkeeper, in the absence of any reasonable or lawful excuse, is bound to receive a guest when he presents himself. 2 El. & Bl. 144.

The distinction between a boarding-house and an inn is that in a boarding-house the guest is under an express contract, at a certain rate for a certain period of time, while in an inn there is no express agreement ; the guest, being on his way, is entertained from day to day, according to his business, upon an implied contract. Wil- lard v. Reinhardt, 2 E. D. Smith (N. Y.) 148.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[James Joyce, 'The Boarding House,' Dubliners, 1914]**

Mrs. Mooney runs her boarding house with an eye to marrying off her daughter to a boarder. (paraphrase) (paraphrase)

Why: The title names the entry: a quasi-public house where boarders are habitually kept.

## BOAT.

A small open vessel, or water- craft, usually moved by oars or rowing. It Is commonly distinguished In law from a ship or vessel, by being of smaller size and with- out a deck. U. S. v. Open Boat, 5 Mason, 120, 137, Fed. Cas. No. 15,967.

5e apparatus — Not carried into the 5th edition (1979).

## BO AT ABLE.

A term applied in some states to minor rivers nnd streams capable of beiug navigated in small boats, skiffs, or launches, though not by steam or sailing ves- sels. New England Trout, etc.. Club v. Math- er, 6S Vt. 338. 35 Atl. 323, 33 L. R. A. 569.

5e apparatus — Carried into the 5th edition (1979).

## BOC.

In Saxon law. A book or writing; a deed or charter. Hoc land, deed or Charter land. Land hoc, a writing for convey- ing land; a deed or charter; a land-book.

Boo horde. A place where books, writings,

or evidences were kept. Cowell.— Boo land. In Saxon law. Allodial lands held by deed or other written evidence of title.

5e apparatus — Not carried into the 5th edition (1979).

## BOCERAS.

Sax. A scribe, notary, or chancellor among the Saxons.

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## BODILY.

Pertaining to or concerning the body ; of or belonging to the body or the physical constitution; not mental but cor- poreal. Electric B. Co. v. Lauer, 21 Ind. App. 466, 52 N. E. 703.

Bodily harm. Any touching of the person

of another against his will with physical force, in an intentional, hostile, and aggressive man- ner, or a projecting of such force against ms person. People v. Moore, 50 Hun, 350, 3 N. jl. Supp. 159.— Bodily heirs. Heirs begotten or borne by the person referred to ; lineal descend- ants. 'l'his term is equivalent to "heirs of the body." Turner v. Hause, 199 111. 464, 65 N. E. 445 ; Craig v. Ambrose, 80 Ga. 134, 4 S. E. 1 ; Bigbter v. Forrester, 1 Bush (Ky.) 278.— Bodi- ly injur. Any physical or corporeal injury ; not necessarily restricted to injury to the trunk or main part of the body as distinguished from the head or limbs. Quirk v. Siegel-Cooper Co., 43 App. I>iv. 464, 60 N. Y. Supp. 228.

5e apparatus — Not carried into the 5th edition (1979).

## BODMERIE, BODEMERIE, BODDE- / MEBEY.

Belg. and Germ. Bottomry, (5. v.)

5e apparatus — Not carried into the 5th edition (1979).

## BODY.

A person. Used of a natural body, or of an artificial one created by law, as a Corporation.

Also the main part of any Instrument; in deeds It is spoken of as distinguished from the recitals and other Introductory parts aud signatures ; In affidavits, from the title and jurat:

The main part of the human body; the trunk. Sanchez v. People, 22 N. Y. 149 ; State v. Edmundson, 64 Mo. 402; Walker v. State, 34 Fla. 167, 16 South. 80, 43 Am. St Rep. 186.

5e apparatus — Carried into the 5th edition (1979).

## BODY CORPORATE.

A corporation.

public corporation invested with powers and duties of government. It is often used. In a rather loose way, to designate the state or nation or sovereign power, or the govern- ment of a county or municipality, without distinctly connoting any express and Individ- ual corporate character. Munn v. Illinois, 94 U. S. 124, 24 L. Ed. 77; Coyle v. Mcln- tire, 7 Houst. (Del.) 44, 30 Atl. 728, 40 Am. St Rep. 109; Warner v. Beers, 23 Wend. (N. Y.) 122 ; People v. Morris, 13 Wend. (N. Y.) 334.

5e apparatus — Carried into the 5th edition (1979).

## BOILARY.

Water arising from a salt well belonging to a person who Is not the owner of the soil.

BOIS, or BOYS. L. Fr. Wood; timber; brush.

BOLHAGIUM, or BOLDAGIUM. A lit- tle house or cottage. Blount

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5e apparatus — Not carried into the 5th edition (1979).

## BOLT.

The desertion by one or more persons from the political party to which he or they belong; the permanent withdrawal before adjournment of a portion of the dele- gates to a political convention. Rap. A L.

5e apparatus — Not carried into the 5th edition (1979).

## BOLTING.

In English practice. A term formerly used In the English inns of court, but more particularly at Gray’s Inn, signify- ing the private arguing of cases, as distin- guished from mooting, which was a more formal and public mode of argument. Cow- ell; Tomlins; Holthouse.*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## BOMBAY REGULATIONS.

Regula- tions passed for the presidency of Bombay, and the territories subordinate thereto. They were passed by the governors In council of Bombay until the year 1834, when the power of local legislation ceased, and the acts re- lating thereto were thenceforth passed by the governor general of India In council. Moz- ley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## BODY OF A COUNTY.

A county at large, as distinguished from any particular place within It. A county considered as a territorial whole. State v. Arthur, 39 Iowa, 632; People v. Duuu, 31 App. Dlv. 139, 52 >\ Y. Supp. 968.

5e apparatus — Carried into the 5th edition (1979).

## BODY OF AN INSTRUMENT.

The

main and operative part; the substantive pro- visions, as distinguished from the recitals, title, jurat, etc.

5e apparatus — Carried into the 5th edition (1979).

## BODY OF LAWS.

An organized and sys- tematic collection of rules of Jurisprudence; as, particularly, the body of the civil law, or corpus juris civilis.

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## BODY POLITIC.

A term applied to a corporation, which is usually designated as a “body corporate aud politic.”

The term is particularly appropriate to a

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5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Coriolanus, c. 1608]**

Menenius tells the fable of the belly: the body's members rebel against the belly, and learn the corporate body starves together. (paraphrase) (paraphrase)

Why: The classic literary statement of the body politic — the corporation/state as one organism of interdependent members.

## BON.

Fr. In old French law. A royal order or check on the treasury, invented by Francis I. Bon pour mille livrcs, good for a thousand llvres. Step. Lect. 387.

In modern law. The name of a clause

(bon pour , good for so much) added

to a cedule or promise, where It is not In the handwriting of the signer, containing the amount of the sum which he obliges himself to pay. Poth. Obi. part 4, ch. 1, art. 2, jj 1.

5e apparatus — Carried into the 5th edition (1979).

## BONA.

Lat. n. Goods; property; pos- sessions. In the Roman law. this term was used to designate all species of property, real, personal, aud mixed, but was more strictly applied to real estate. In modern civil law, it includes both personal property (technically so called) and chattels real, thus corresponding to the French biens. In the common law, Its use was confined to the de-

BONb

scrlption of tnovable goods. Tisdale v. Har- ris, 20 Pick. (Mass.) 13 ; Penulman v. French, 17 Pick. (Mass.) 404, 28 Am. Dec. 809.

—Bona confiscate. Goods confiscated or for- feited to the imperial fisc or treasury. 1 Bl. Comm. 299. — Bona et catalla. Goods and chattels. Movable property. This expression includes all personal things that belong to a man. 16 Mees. & W. 68.— Bona felonnm. In English law. Goods of felons ; the goods of one convicted of felony. 6 Coke, 110.— Bona for- isfacta. Goods forfeited.— Bona fngitivo- rnm. In English law. Goods of fugitives ; the proper goods of him who flies for felony. 6 Coke, 1096.— Bona mobilia. In the civil law. Movables. Those things which move themselves or can be transported from one place to another, and not permanently attached to a farm, herit- age, or building.— Bona notabilia. In Eng- lish probate law. Notable goods ; property wor- thy of notice, or of sufficient value to be ac- counted for, that is, amounting to £5. Where a decedent leaves goods of sufficient amount (bona notabilia) in different dioceses, administration is granted by the metropolitan, to prevent the confusion arising from the appointment of many different administrators. 2 Bl. Comm. 509 ; Rof- Je, Abr. 908. Moore v. Jordan, 36 Kan. 271, 13 Pac. 337, 50 Am. Rep. 550.— Bona para- phernalia. In the civil law. The separate property of a married woman

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other than that which is included in her dowry; more particu- larly, her clothing, jewels, and ornaments. Whi- ton v. Snyder, 88 N. Y. 303.— Bona perltnra. Goods of a perishable nature ; such goods as an executor or trustee must use diligence in dispos- ing of and converting them into money.— Bona utlagatomjn. Goods of outlaws ; goods be- longing to persons outlawed.— Bona vacantia. Vacant, unclaimed, or stray goods. Those things in which nobody claims a property, and which belong to the crown, by virtue of its preroga- tive. 1 Bl. Comm. 298.— Bona waviata. In English law. Want'd goods ; goods stolen and waived, that is, thrown away by the thief in his flight, for fear of being apprehended, or to facili- tate his escape ; and which go to the sovereign. 5 Coke, 1096 ; 1 Bl. Comm. 296.

5e apparatus — Not carried into the 5th edition (1979).

## BONA.

Eat. adj. Good. Used in numer- ous legal phrases of which the following are the principal:

—Bona fides. Good faith ; integrity of dealing ; honesty ; sincerity ; the opposite of mala fide* and of dolus malus.— Bona geitua. Good abearance or behavior.— Bona gratia. In the Roman law. By mutual consent ; voluntarily. A term applied to a species of divorce where the parties separated by mutual consent; or where the parties renounced their marital engagements without assigning any cause, or upon mere pre- texts. Tayl. Civil Law, 361, 362 ; Calvin.— Bo- na memoria. Good memory. Generally used in the phrase tame mentis et bonce memorice, of sound mind and good memory, as descriptive of the mental capacity of a testator. — Bona patria. In the scotch law. An assise or jury of good neighbors. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## BONA FIDE.

In or with good faith; honestly, openly, and sincerely; without de- ceit or fraud.

Truly; actually; without simulation or pretense.

Innocently; in the attitude of trust and confidence; without notice of fraud, etc.

The phrase “ bona fide" is often used ambigu- ously ; thus, the expression “a bona fide holder for value” may either mean a holder for real value, as opposed to a holder for pretended

value, or it may mean a holder for real value without notice of any fraud, etc. Byles, Bills, 121.

—Bonn fide purchaser. A purchaser for a valuable consideration paid or parted with in the belief that the vendor had a right to sell, and without any suspicious circumstances to

Sut him on inquiry. Merritt v. Railroad Co., 12 larb. (N. Y.) 605. One who acts without covin, fraud, or collusion ; one who, in the commission of or connivance at no fraud, pays full price for the property, and in good faith, honestly, and in fair dealing buys and goes into possession. Sanders v. McAffee, 42 Ga. 250. A bona fide purchaser is one who buys property of another without notice that some third person has a right to, or interest in, such property, and pays a full and fair price for the same, at the time of such purchase, or before he has notice of the claim or interest of such other in jthe property. Spicer v. Waters, 65

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Barb. (N. Y.) 231.

Bonn fide possessor faclt frnctns oon- sumptos snos. By' good faith a possessor makes the fruits consumed his own. Tray. Lat Max. 57.

Bonn fides exlgit nt qnod oonvenit fiat.

Good faith demands that what is agreed up- on shall be done. Dig. 19, 20, 21; Id. 19, 1, 50; Id. 50, 8, 2, 13.

Bonn fides non pntltnr nt Us Idem ex- igatur. Good faith does not allow us to de- mand twice the payment of the same thing. Dig. 50, 17, 57 ; Broom, Max. 338, note ; Perine v. Dunn, 4 Johns. Ch. (N. Y.) 143.

BONES FID El. In the civil law. Of good faith; in good faith. This is a more frequent form than bona fide.

—Bonn fidei contracts. Id civil and Scotch law. Those contracts in which equity may in- terpose to correct inequalities, and to adjust all matters according to the plain intention of the parties. 1 Karnes, Eq. 200.— Bonss fidei emp- ,tor. A purchaser in good faith. One who ei- ther was ignorant that the thing he bought be- longed to another or supposed that the seller had a right to sell it. Dig. 50, 16, 109. See Id. 6, 2, 7, 11.— Bonse fidei possessor. A pos- sessor in good faith. One who believes that no other person has a better right to the possession than himself. Mackeld. Rom. Law, § 243.

Bonss fidei possessor In Id tantum qnod sese pervenerlt tenetnr. A possessor in good faith is only liable for that which he himself has obtained. 2 Inst. 285.

BOND, «. A contract by specialty to pay a certain sum of money; being a deed or instrument under seal, by which the maker or obligor promises, and thereto binds him- self, his heir’s, executors, and administra- tors, to pay a designated sum of money to another; usually with a clause to the ef- fect .that upon performance of a certain condition (as to pay another and smaller sum) the obligation shall be void. U. S. y. Bundle, 100 Fed. 403, 40 C. C. A. 450; Turek v. Mining Co., 8 Colo. 113. 5 Tae. 838; Boyd v. Boyd, 2 Nott & McC. (S. C.) 126.

The word “bond" shall embrace every written undertaking for the payment of money or ackaowledgment of being bound for money, con- ditioned to be void on the performance of any duty, or the occurrence of anything therein ex- pressed, and subscribed and delivered by the party making it, to take effect as his obligation, whether it be sealed or unsealed ; and, when a bond is required by law, an undertaking in writ- ing without seal shall be sufficient. Bev. Code Miss. 1880, | 19.

The word “bond” has with us a definite legal signification. It has a clause, with a sum fixed as a penalty, binding the parties to pay the same, conditioned, however, that the payment of the penalty may be avoided by the performance by some one or more of the parties of certain acts. In re Fitch, 8 Redf. Sur. (N. Y.) 459.

Bonds are either single (simple) or double, (conditional.) A single bond is one in which the obligor binds himself, his heirs, etc., to pay a certain sum of money to another per- son at a specified day. A double (or condi- tional) bond is one to which a condition is added that if

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the obligor does or forbears from doing some act the obligation shall be void. Formerly such a conditlou was some- times contained in a separate instrument, and was then called a “defeasance.”

The term is also used to denote debentures or certificates of indebtedness issued by pub- lic and private corporations, governments, and municipalities, as -security for the re- payment of money loaned to them. Thus, “railway aid bonds” are bonds issued by municipal corporations to aid in the con- struction of railroads likely to benefit them, and exchanged for the company’s stock.

In old Scotch law. A bond-man; a slave. Skene.

—Bond and disposition In security. In

Scotch law. A bond and mortgage on land— Bond and mortgage. A species of security, consisting of a bond conditioned for the repay- ment of a loan of money, and a mortgage of realty to secure the performance of the stipula- tions of the bond. Meigs v. Bunting, 141 Pa. 233, 21 Ati. 588, 23 Am. St. Rep. 273— Bond creditor. A creditor whose debt is secured by a bond— Bond for title. An obligation ac- companying an executory contract for the sale of land, binding the vendor to make good title upon the performance of the conditions which entitle the vendee to demand a conveyance. White v. Stokes, 67 Ark. 184, 53 S. W. 1060— Bond tenants. In English law. Copyholders and customary tenants are sometimes so called. 2 Bl. Comm. 148— Official bond. A bond giv- en by a public officer, conditioned that he shall well and faithfully perform all the duties of the office. The term is sometimes made to include the bonds of executors, guardians, tmstees, etc. — Simple bend. At common law, a bond with- out penalty ; a bond for the payment of a defi- nite sum of money to a named obligee on de- mand or on a day certain. Burnside v. Wand, 170 Mo. 531, 71 S. W. 337, 62 L. R. A. 427. — Single bond. A deed whereby the obligor obliges himself, his heirs, executors, and admin- istrators, to pay a certain sum of money to the obligee at a day named, without terms of de- feasance.

BOND, v. To give bond for, as for du- ties on goods; to secure payment of duties, by giving bond. Bonded, secured by bond. Bonded goods are those tor the duties on which bonds are given.

5e apparatus — Not carried into the 5th edition (1979).

## BONDAGE.

Slavery; Involuntary per- sonal servitude; captivity. In old English law, vlllenage, villein tenure. 2 Bl. Comm. 92.

BONDED* WAREHOUSE. See Wabe- bouse System.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIII, § 1]**

The constitutional root abolishing what the entry defines: 'Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within

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the United States.'

Why: The body defines bondage as slavery citing only Blackstone, with no modern authority; the Thirteenth Amendment is the verbatim constitutional source that ended the institution described — genuine illumination, not a r...

**[Scripture] — Scripture**

**[Exodus 20:2, KJV]**

I am the LORD thy God, which have brought thee out of the land of Egypt, out of the house of bondage.

Why: BONDAGE is slavery, involuntary servitude. 'The house of bondage' is scripture's own term for it — Egypt, the archetype of servitude from which deliverance comes, named here by God Himself at the opening of the Decalo...

**[Humanity] — Humanity / Fiction & Film**

**[Director: Steve McQueen, 12 Years a Slave, 2013]**

Solomon Northup, a free man kidnapped, endures twelve years of chattel bondage in Louisiana. (paraphrase) (paraphrase)

Why: Involuntary personal servitude dramatized from a true account — the entry's first sense, unsoftened.

## BONDSMAN.

A surety; one who has entered Into a bond as surety. The word seems to apply especially to the sureties up- on the bonds of officers, trustees, etc., while bail should be reserved for the sureties on recognizances and bail-bonds. Haberstich v. Elliott, 189 111. 70, 09 N. E. 557.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, If thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, Thou art taken with the words of thy mouth.

Why: BONDSMAN is one who has entered a bond as surety. Proverbs 6:1-2 names the office ('surety for thy friend') and the ancient act of entering it ('stricken thy hand with a stranger') — the hand-strike being the very ges...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596–1598]**

Antonio stands surety for Bassanio's 3,000 ducats, sealing the pound-of-flesh bond with Shylock. (paraphrase) (paraphrase)

Why: The most famous suretyship in literature: one entering into a bond as surety for another's debt.

## BONES GENTS.

L. Fr. In old English law. Good men, (of the jury.)

5e apparatus — Not carried into the 5th edition (1979).

## BONI HOMINES.

In old European law. Good men ; a name given in early European Jurisprudence to the tenants of the lord, who Judged each other in the lord’s courts. 3 Bl. Comm. 349.

Boni indicia eat ampliare jurisdietionem. It is the part of a good judge to en- large (or use liberally) his remedial author- ity or Jurisdiction. Ch. Free. 329; 1 Wils. 284.

Boni indicia eat ampliare jnatltiam.

It is the duty of a good judge to enlarge or extend Justice. 1 Burr. 304.

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Boni Jndieia eat indicium also dila- tions mandare execution!. It is the duty of a good Judge to cause judgment to be ex- ecuted without delay. Co. Litt. 289.

Boni indicia eat litea dirimere, ne lia ex lite oritur, et in tercet relpnblicac nt eint fine* litlum. It is the duty of a good judge to prevent litigations, that suit may not grow out of suit, and it concerns the welfare of a state that an end be put to litigation. 4 Coke, 156; 5 Coke, 31a.

5e apparatus — Not carried into the 5th edition (1979).

## BONIS CEDERE.

In the civil law. To make a transfer or surrender of property, as a debtor did to his creditors. Cod. 7, 71.

5e apparatus — Not carried into the 5th edition (1979).

## BONIS NON AMOVENDIS.

A writ ad- dressed to the sheriff, when a writ of error has been brought, commanding tbat the per- son against whom judgment has been ob- tained be not suffered to remove his goods till the error be tried and determined. Reg. Orig. 131.

5e apparatus — Not carried into the 5th edition (1979).

## BONIFICATION.

The remission of a tax, particularly on goods intended for ex- port, being a special advantage extended by government in aid of trade and manufac- tures. and having the same effect as a bonus or drawback. It is a device resorted to for enabling a commodity affected by taxes to

BONITA RIAN OWNERSHIP

be exported aud sold In tbe foreign market on the same terms as If It had not been tax- ed. U. S. v. Passavant, 169 U. S. 16, 18 Sup. Ct. 219, 42 L. Ed. 644; Downs v. U. S„ 113 Fed. 148, 51 C. C. A. lCp.

5e apparatus — Carried into the 5th edition (1979).

## BONITAS LAN OWNERSHIP.

In Ro- man law. A species of equitable title to things, as distinguished from a title acquir- ed according to the strict forms of the mu- nicipal law; the property of a Roman citi- zen in a subject capable of qulritary prop- erty, acquired by a title not known to the civil law, but Introduced by the prietor. and protected by his impcrium or supreme ex- ecutive power, e. j/., where res mancipi bad been transferred by mere tradition. Poste’s Gaius Inst 187. See Quibitabian Owneb- ship.

5e apparatus — Not carried into the 5th edition (1979).

## BONO ET MAXO.

A special writ of Jail delivery, which formerly issued of course for each particular prisoner. 4 BL Comm. 270.

Bontun defendant!* ex Integra causa; malum ex -quolibet defectn. The success of a

defendant depends on a perfect case; his loss arises from some defect 11 Coke, 68a.

Bonnm neoeiwxiiun extra termino* necessitatis non est bonam. A good thing required by necessity is not good be- yond the limits of such necessity. Hob. 144.

5e apparatus — Not carried into the 5th edition (1979).

## BONUS.

A gratuity. A premium paid to a grantor or vendor.

An extra consideration given for what is received.

Any premium or advantage; an occasion- al extra dividend.

A premium paid by a company for a char- ter or other franchises.

"A definite sum to be paid at one time, for a loan of money for a specified period, distinct from and Independently of the in- terest.” Association v. Wilcox, 24 Conn. 147.

A bonus is not a gift or gratuity, but a sum paid for services, or upon some other considera- tion, but in addition to or in excess of that which would ordinarily be given. Ivenicott v. Wayne County, 16 Wall. 452, 21 L. Ed. 319.

Bonus judex secundum sequnm ct bontun jndleat, ct aequitatem stricto jnri praefert. A good judge decides ac- cording to what is Just and good, and pre- fers equity to strict lajv. Co. Litt. 34.

BOOK. 1. A general deslgnatiop applied to any literary composition which is print- ed, but appropriately to a printed composi- tion bound in a volume. Scovllle v. Toland, 21 Fed. Cas. 864.

2. A bound volume consisting of sheets of paper, not printed, but containing manuscript entries: such as a merchant's ac- count-books, dockets of courts, etc.

3. A name often given to the largest sub- divisions of a treatise or other literary com- position.

4. In practice, the name of “book” is giv- en to several of the more important papers prepared in the progress of a cause, though entirely written, and not at all in the book form; such as demurrer-books, error-books, paper-books, etc.

In copyright law, the meaning of the term is more extensive than in popular usage, for it may include a pamphlet, a magazine, a collection of blank forms, or a single sheet of music or of ordinary print- ing. U. S. v. Bennett, 24 Fed. Cas. 1,093; Stowe v. Thomas, 23 Fed. Cas. 207 ; White v. Geroch, 2 Barn. & Aid. 301 ; Brlghtley v. Littleton (C. C.) 37 Fed. 104; Holmes v. Hurst, 174 U. S. 82, 19 Sup. Ct. 606. 43

L. Ed. 904; dementi v. Goulding, 11 East, 244; dayton v. Stone, 5 Fed. Cas. 999.

—Book account. A detailed statement, kept in writing in a book, in the nature of debits and credits between persons, arising out of contract or some fiduciary relation ; an account or record of debit and credit kept in a book. Taylor v. Horst, 52 Minn. 300, 54 N. W. 734; Stieglitz v. Mercantile Co., 76 Mo. App. 280; Kennedy v. Ankrim, Tapp. (Ohio) 40.— Book debt. In Pennsylvania practice. The act of 28th March, 1805. i 2, in using the words, “book

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debt” and “book entries,” refers to their usual signification, which includes goods sold and delivered, and work, labor, and serv- ices performed, the evidence of which, on the part of the plaintiff, consists of entries in an original book, such as is competent to go to a jury, were the issue trying before them. Hamill v. O’Donnell, 2 Miles (Pa.) 102.— Book of acts. A term applied to the records of a surrogate’s court. 8 East, 187.— Book of ad- journal. In Scotch law. The original rec- ords of criminal trials in the court of justiciary. —Book of original entries. A book in which a merchant keeps his accounts generally and enters therein from day to day a record of his transactions. McKnight v. Newell, 207 Pa. 662, 57 Atl. 39. A book kept for the pur- pose of charging goods sold and delivered, in which the entries are made contemporaneously with the delivery of the goods, and by the per- son whose duty it was for the time being to make them. Laird v. Campbell. 100 Pa. 165; Ingraham v. Bockius. 9 Scrg. & R. (Pa.) 285. 11 Am. Dec. 730; Smith v. Sanford. 12 Pick. (Mass.) 140, 22 Am. Dec. 415; Breinig v. Meitzler, 23 Pa. 150. Distinguished from such books as a ledger, into which entries are post- ed from the book of original entries.— Book of rates. An account or enumeration of the du- ties or tariffs authorized by parliament. 1 Bl. Comm. 310. — Book of responses. In Scotch law. An account which the directors of the chancery kept to enter all non-entry and relief duties payable by heirs who take precepts from chancery. — Booklnnd. In English law. Land, also called “charter-land,’’ which was held by deed under certain rents and free services, and differed in nothing from free socage land. 2 Bl. Comm. 90. — Books. All the volumes which contain authentic reports of decisions in English courts, from the earliest times to the present, are called, par excellence. “The Books.” Whar- ton.—Books of account. The books in which merchants, traders, and business men generally keep their accounts. Parris v. Bellows. 52 Vt. 351; Com. v. Williams, 9 Mete. (Mass.)

273; Wilson v. Wilson, 6 N. J. Law, 96: Se- curity Co. v. Graybeal, 86 Iowa, 543, 52 N. W. 497. 39 Am. St. Rep. 311 ; Colbert v. Piercy, 25 N. C. 80.

5e apparatus — Carried into the 5th edition (1979).

## BOOM.

An inelosure formed upon the surface of a stream or other body of water, by means of piers and a chain of spars, for the purpose of collecting or storing logs or timber. Powers’ Appeal, 126 Pa. 175, 17

AO. 254, 11 Am. St. Rep. 882; Lumber Co. v. Green, 76 Mich. 320, 43 N. W. 576; Gas- per v. Heimbach, 59 Minn. 102, 60 N. W. 1080; Boom Corp. v. Whiting, 29 Me. 123.

5e apparatus — Not carried into the 5th edition (1979).

## BOOM COMPANY.

A company formed for the purpose of improving streams for the floating of logs, by means of booms and other contrivances, and for the purpose of running, driving, booming, and rafting logs.

5e apparatus — Not carried into the 5th edition (1979).

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## BOOMAOB.

A charge on logs for the use of a boom in collecting, storing, or raft- ing them. Lumber Co. v. Thompson, 83 Miss. 499, 35 South. 828. A right of entry on riparian lands for the purpose of fasten- ing booms and boom sticks. Farrand v. Clarke. 63 Minn. 181, 65 N. W. 361.

BOON DAtS. In English law. Certain days in the year (sometimes called “due days”) on which tenants in copyhold were obliged to perform corporal services for the lord. Whlshaw.

BOOT, or BOTE. An old Saxon word, equivalent to “estovers.”

BOOTING, or BOTING, CORN. Cer- tain rent corn, anciently so called. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BOOTY.

Property captured from the enemy in war, on land, as distinguished from “prize,” which is a capture of such property .on the sea. U. S. v. Bales of Cot- ton, 28 Fed. Cas. 302 ; Coolldge v. Guthrie, 6 Fed. Cas. 461.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 20:14, KJV]**

But the women, and the little ones, and the cattle, and all that is in the city, even all the spoil thereof, shalt thou take unto thyself; and thou shalt eat the spoil of thine enemies, which the LORD thy God hath given thee.

Why: BOOTY is property captured from the enemy in war on land. Deuteronomy 20:14 is the scriptural law of land-warfare spoil: the conqueror may take 'all the spoil' of the city to himself — the legal right of booty stated…

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: classical — Homer, Iliad, c. 8th century BCE]**

Achilles and Agamemnon quarrel over Briseis, a captive woman allotted as war-booty. (paraphrase) (paraphrase)

Why: The epic's inciting quarrel is over booty in the entry's exact sense: property captured from the enemy in war, on land.

## BORO.

An old Saxon word, signifying a cottage; a house; a table.

5e apparatus — Not carried into the 5th edition (1979).

## BORO AGE.

In old English law. A species of base tenure, by which certain lands (termed “bord lands,”) were anciently held in England, the tenants being termed “bnrdarii the service was that of keep- ing the lord in small provisions.

5e apparatus — Not carried into the 5th edition (1979).

## BORDARXA.

A cottage.

BOROARB, or BORDIMANNI. In old

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English law. Tenants of a less servile con- dition than the villani, who had a bord or cottage, with a small parcel of land, allow- ed to them, on condition they should supply the lord with poultry and eggs, and other small provisions for bis board or entertain- ment Spelman.

Bl.Law Dict.(2d Ed.)— 10

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BORD-BRIGCH.

In Saxon law. A breach or violation of suretyship ; pledge- breach, or breach of mutual fidelity.

5e apparatus — Not carried into the 5th edition (1979).

## BORDER WARRANT.

A process grant- ed by a judge ordinary, on either side of the border between England and Scotland, for arresting the person or effects of a per- son living on the opposite side, until he find security, judicio sisti. Bell.

5e apparatus — Carried into the 5th edition (1979).

## BORDEREAU.

In French law. A note enumerating the purchases and sales which may have been made by a broker or stock- broker. This name is also given to the state- ment given to a banker witlr bills for dis- count or coupons to receive. Arg. Fr. Merc. Law, 547.

5e apparatus — Not carried into the 5th edition (1979).

## BORD-HALFFENNY.

A- customary small toll paid to the lord of a town for set- ting up boards, tables, booths, etc., in fairs or markets;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BORDLANDS.

The demesnes which the lords keep in their hands for the mainte- nance of their board or table. Cowell.

Also lands held in bordage. Lands which the lord gave to tenants on condition of their supplying his table with small provi- sions. poultry, eggs, etc.

5e apparatus — Carried into the 5th edition (1979).

## BORDLODE.

A service anciently requir- ed of tenants to carry timber out of the woods of the lord to his house; or it is said to be the quantity of food or provision which the bordarii or bordmen paid for their bord- lands. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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## BORDSERVICE.

A tenure of bord- lands.

5e apparatus — Carried into the 5th edition (1979).

## BORED-FOLK.

Country people; deriv- ed from the French bourre, (Lat. floceus.) a lock of wool, because they covered their heads with such stuff. Blount

5e apparatus — Not carried into the 5th edition (1979).

## BORG.

In Saxon law. A pledge, pledge giver, or surety. The name given among the Saxons to the bead of each family com- posing a tithing or decennary, each being the pledge for the good conduct of the oth- ers. Also the contract or engagement of suretyship ; and the pledge given.

5e apparatus — Not carried into the 5th edition (1979).

## BORGBRICHE.

A breach or violation of suretyship, or of mutual fidelity. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## BORGESMON.

In Saxon law. The name given to the head of each family com- posing a tithing.

5e apparatus — Not carried into the 5th edition (1979).

## BORGH OF HAMHALD.

In old Scotch law. A pledge or surety given by the seller of goods to the buyer, to make the goods forthcoming as his own proper goods, and to warrant the same to him. Skene.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BOROUGH.

In EncUsh Uw. A town, a walled town. Co. Litt. 1086. A town of note or Importance; a fortified town. Cow- ell. An ancient town. Lltt. 164. A cor- porate town that Is not a city. Cowell. An ancient town, corporate or not, that sends burgesses to parliament. Co. Lltt. 109a; 1 Bl. Comm. 114, 115. A city or other town sending burgesses to parliament. 1 Steph. Comm. 116. A town or place organized for local government.

A parliamentary borough Is a town which returns one or more members to parliament.

In Scotch law. A corporate body erect- ed by the charter of the sovereign, consisting of the inhabitants of the territory erected In- to the borough. Bell.

In American law. In Pennsylvania, the term denotes a part of a township having a charter

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for municipal purposes; and the same Is true of Connecticut. Southport ▼. Ogden, 23 Conn. 128. See, also, 1 Dill. Mun. Corp. f 41, n.

“Borough” and “‘village” are duplicate or cumulative names of the same thing ; proof of either will sustain a charge in an indictment employing the other term. Brown v. State, 18 Ohio ‘St. 496.

Borough courts. In English law. Private

and limited tribunals, held by prescription, char- ter, or act of parliament, in particular districts for the convenience of the inhabitants; that they may prosecute small suits and receive justice at home.— Borough English. A custom prev- alent in some parts of England, by winch the youngest son. inherits the estate in prefer- ence to his older brothers. 1 Bl. Comm. 75. —Borough fund. In English law. The reve- nues of a municipal borough derived from the rents and produce of the land, houses, and stocks belonging to the borough in its corporate capacity, and supplemented where necessary by a borough rate. — Borough-heads. Borough- holders, bors-holdere, or burs-holders.— Bor- ough-reeve. The chief municipal officer in towns unincorporated before the municipal cor- porations act, (5 & 6 Wm. IV. c. 76.)— Bor- ough sessions. Courts of limited criminal jurisdiction, established in English boroughs under the municipal corporations act. — Pocket borough. A term formerly used in English politics to describe a borough entitled to send a representative to parliament, in which a single individual, either as the principal landlord or by reason of other predominating influence, could entirely control the election and insure the return of the candidate whom he should nominate.

5e apparatus — Not carried into the 5th edition (1979).

## BORROW.

To solicit and receive from another any article of property or thing of value with the Intention and promise to re- pay or return It or Its equivalent. Strictly speaking, borrowing implies a gratuitous loan; If any price or consideration is to be paid for the use of the property, It Is “hir- ing.” But money may be “borrowed” on an agreement to pay interest for Its use. Neel v. State, 33 Tex. Cr. R. 408. 26 S. W. 726; Kent v. Mining Co., 7S N. Y. 177 ; Legal Ten- der Cases. 110 U. S. 421, 4 Sup. Ct. 122, 28

L. Ed. 204.

This word is often used in the sense of re- turning the thing borrowed in specie, as to borrow a book or any other thing to be returned again. But It is evident that where money is borrowed, the identical money loaned is not to be returned, because, if this were so, the borrower would derive no benefit from the loan. In the broad sense of the term, it means a contract for the use of money. State v. School Dist., 13 Neb. 88, 12 N. W. 812; Railroad Co. v. Stichter, 11 Wkly. Notes Cas. (Pa.) 325.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596–1598]**

Antonio solicits and receives 3,000 ducats from Shylock, promising repayment with interest. (paraphrase) (paraphrase)

Why: Borrowing with a promise to repay — the entry's sense, down to the interest the definition contemplates for money.

## BORROWE.

In old Scotch law. A pledge.

5e apparatus — Not carried into the 5th edition (1979).

## BORSHOLDER.

In Saxon law. The borough’s ealder, or headborough, supposed to be In the discreetest man In the borough, town, or tithing.

5e apparatus — Not carried into the 5th edition (1979).

## BOSCAGE.

In English law. The food which wood and trees yield to cattle ; browse- wood, mast, etc. Spelman.

An ancient duty of wind-fallen wood In the fo'rest. Manwood

5e apparatus — Not carried into the 5th edition (1979).

## BOSCARIA.

Wood-houses, or ox-houses.

5e apparatus — Not carried into the 5th edition (1979).

## BOSCUS.

Wood; growing wood of any kind, large or small, timber or coppice. Cow- ell ; Jacob

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BOTE.

In .old English law. A recom- pense or compensation, or profit or advan- tage. Also reparation or amends for any damage done. Necessaries for the mainte- nance and carrying on of husbandry. An allowance ; the ancient name for estovers.

House-bote is a sufficient allowance of wood from off the estate to repaif or burn in the bouse, and sometimes termed “fire-bote ;” plow- bote and cart-bote are wood to be employed in making and repairing all instruments of hus- bandry ; and hay-bote or hedge-bote is wood for repairing of hays, hedges, or fences. The word also signifies reparation for any damage or in- jury done, as man-bote, which was a compen- sation or amends for a man slain, etc.

5e apparatus — Not carried into the 5th edition (1979).

## BOTELE8S.

In old English law. With- out amends ; without the privilege of making satisfaction for a crime by a pecuniary pay- ment; without relief or remedy. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BOTHA.

In old English law. A booth, stall, or tent to stand in, in fairs or markets. Cowell.

BOTHAGITJM, or BOOTHAGE. Cus- tomary dues paid to the lord of a manor or soil, for the pitching or standing of booths in fairs or markets.

BOTHNA, or BUTHNA. In old Scotch law. A park where cattle are inclosed and fed. Bothna also signifies a barony, lord- ship, etc. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## BOTTOMAGE.

L. Pr. Bottomry.

5e apparatus — Carried into the 5th edition (1979).

## BOTTOMRY.

In maritime law. A con- tract in the nature of a mortgage, by which the owner of a ship borrows money for the use, equipment, or repair of the vessel, and

for a definite term, and pledges the ship (or the keel or bottom of the ship, par* pro toto) as a security for its repayment, with mari- time or extraordinary Interest on account of the marine risks to be borne by the lender; it being stipulated that if the ship be lost in the course of the specified voyage, or dur- ing the limited time, by any of the perils enumerated in the contract, the lender shall also lose his money. The Draco, 2 Sumn. 157, Fed. Cas. No. 4,057; White v. Cole, 24 Wend. (N. Y.) 126; Carrington v. The Pratt, 18 How. 63, 15 L. Ed. 267; The Dora (D. C.) 34 Fed. 343; Jennings v. Insurance Co., 4 Bin. (Pa.) 244, 5 Am. Dec. 404; Braynard v. Hoppock, 7 Bosw. (N. Y.) 157.

Bottomry is a contract by which a ship or its freightage Is hypothecated as security for a loan, which is to be repaid only in case the ship survives a particular risk, voyage, or period. Olv. Code Cal. f 3017; Civ. Code Dak. | 1783.

When the loan is not made upon the ship, but on the goods laden on board, and which are to be sold or exchanged in the course of the voyage, the borrowers personal responsibility is deemed the principal security for the per- formance of the contract, which is therefore called “ respondentia ,” which see. And in a loan upon respondentia the lender must be paid his principal and interest though the ship perish, provided the goods are saved. In most other re- spects the contracts of bottomry and of respon- dentia stand substantially upon the Bame foot- ing. Bouvier.

5e apparatus — Carried into the 5th edition (1979).

## BOTTOMRY BOND.

The Instrument embodying the contract or agreement of bot- tomry.

The true definition of a bottomry bond, in the sense of the general maritime law, and in- dependent of the peculiar regulations of the positive codes of different commercial nations, is that it is a contract for a loan of money on the bottom of the ship, at an extraordinary

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interest, upon maritime risks, to be borne by the lender for a voyage, or for a definite period. The Draco, 2 Sumn. 157, Fed. Cas. No. 4,067 ; Cole v. White, 26 Wend. (N. Y.) 515; Greely v Smith, 10 Fed. Cas. 1077 ; The Grapeshot, 9 Wall. 135, 19 L. Ed. 651.

5e apparatus — Carried into the 5th edition (1979).

## BOUGHS.

Fr. The mouth. An allow- ance of provision. Avoir bouche A court; to have an allowance at court; to be in ordi- nary at court ; to have meat and drink scot- free there. Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BOUCHE OF COURT, or BUDGE OF / COURT.

A certain allowance of provision from the king to his knights and servants, who attended him on any military expedi- tion.

5e apparatus — Not carried into the 5th edition (1979).

## BOUGH OF A TREE.

In feudal law. A symbol which gave seisin of land, to hold of the donor in capite.

5e apparatus — Carried into the 5th edition (1979).

## BOUGHT AND SOU) NOTES.

When a broker is employed to buy and sell goods, he is accustomed to give to the buyer a note of the sale, commonly called a “sold note,” and to the seller a like note, commonly call- ed a “bought note,” in his own name, as

agent of each, and thereby they are respec- tively bound, if he has not exceeded his au- thority. Saladln v. Mitchell, 45 111. 83; Kelm v. Llndl ey (N. J. Ch.) 30 Atl. 1070.

5e apparatus — Not carried into the 5th edition (1979).

## BOUXEVARD.

The word “boulevard,” which originally indicated a bulwark or ram- part, and was afterwards applied to a pub- lic walk or road on the site of a demolished fortification, is now employed in the same sense as public drive. A park is a piece of ground adapted and set apart for purposes of ornament, exercise, and amusement It is not a street or road, though carriages may pass through it.

So a boulevard or public drive is adapted and set apart for purposes of ornament, ex- ercise, and amusement. It is not technically a street, avenue, or highway, though a car- riage-way over it is a chief feature. People v. Green, 52 How. Prac. (N. Y.) 445; Howe v. Lowell, 171 Mass. 575, 51 N. E. 536 : Park Com’rs v. Farber, 171 111. 146, 49 N. E. 427.

5e apparatus — Not carried into the 5th edition (1979).

## BOUND.

As an adjective, denotes the condition of being constrained by the obli- gations of a bond or a covenant. In the law Of shipping, “bound to” or "bound for” de- notes that the vessel spoken of is intended or designed to make a voyage to the place named.

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As a noun, the term denotes a limit or boundary, or a line inclosing or marking off a tract of land. In the familiar phrase “metes and bounds,” the former term prop- erly denotes the measured distances, and the latter the natural or artificial marks which indicate their beginning and ending. A dis- tinction is sometimes taken between “bound” and “boundary,” to the effect that, while the former signifies the limit itself, (and may be an imaginary line,) the latter designates a visible mark which indicates the limit. But no such distinction is commonly observed.

5e apparatus — Carried into the 5th edition (1979).

## BOUND BAILIFFS.

In English law. Sheriffs' officers are so called, from their be- ing usually bound to the sheriff in an obli- gation with sureties, for the due execution of their office. 1 Bl. Comm. 345, 346.

5e apparatus — Carried into the 5th edition (1979).

## BOUNDARY.

By boundary is under- stood, in general, every separation, natural or artificial, which marks the confines or line of division of two contiguous estates. Trees or hedges may be planted, ditches may be dug, walls or inclosures may be erected, to serve as boundaries. But we most usually understand by boundaries stones or pieces of wood inserted in the earth on the confines of the two estates. Civ. Code La. art 826.

Boundaries are either natural or artificial. Of the former kind are water-courses, grow- ing trees, beds of rock, and the like. Artifi- cial boundaries are landmarks or signs erect- ed by the hand of man, as a pole, stake, pile of stones, etc.

— N fttnrsl boundary. Any formation or prod- uct of nature (as opposed to structures or erect!ons made by man) which may serve to define and fix one or more of the lines inclosing an estate or piece of property, such as a water- course, a line of growing trees, a bluff or moun- tain chain, or the like. See Peuker v. Canter, 62 Knn. 363, 63 Pac. 617 ; Stapleford v. Brin- son, 24 N. C. 311 ; Eureka Mining, etc., Co. v. Way, 11 Nev. 171. — Private boundary. An artificial boundary, consisting of some monu- ment or landmark set up by the hand of man to mark the beginning or direction of a bound- ary line of lands.— Public boundary. A natural boundary; a natural object or land- mark used as a boundary of a tract of land, or as a beginning point for a boundary line.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: BOUNDARY — the separation marking the confine of estates — is a matter of statute in Deut 19:14: the ancient landmark of the inheritance may not be removed. The verse is the scriptural root of the law against boundary...

## BOUNDED TREE.

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A tree marking or standing at the corner of a field or estate.

5e apparatus — Carried into the 5th edition (1979).

## BOUNDERS.

In American law. Visible mnrks or objects at the ends of the lines drawn in surveys of land, showing the cours- es and distances. Burrlll.

5e apparatus — Carried into the 5th edition (1979).

## BOUNDS.

In the English law of mines, the trespass committed by a person who ex- cavates minerals under-ground beyond the boundary of his land is called “■working out of bounds."

5e apparatus — Carried into the 5th edition (1979).

## BOUNTY.

A gratuity, or an unusual or additional benefit conferred upon, or com- pensation paid to, a class of persons. Iowa v. McFarland, 110 U. S. 471, 4 Sup. Ct. 210, 28 L. Bd. 198.

A premium given or offered to induce men to enlist into the public service. The term is applicable only to the payment made to the enlisted man, as the inducement for his serv- ice, and not to a premium paid to the man through whose intervention, and by whose procurement, the recruit is obtained and mustered. Abbe v. Allen, 39 How. Prac. (N. Y.) 488.

It is not easy to discriminate between bounty, reward, and bonus. The former is the appro- priate term, however, where the services or action of many persons are desired, and each who acts upon the offer may entitle himself to the promised gratuity, without prejudice from or to the claims of others; while reward is more proper in the case of a single service, which can be only once performed, and there- fore will he earned only by the person or co-operative persons who succeed while others fail. Thus, bounties are offered to all who will enlist in the army or navy ; to all who will engage in certain fisheries which government desire to encourage ; to all who kill dangerous beasts or noxious creatures. A reward is of- fered for rescuing a person from a wreck or fire: for detecting and arresting an offender; for finding a lost chattel. Kircber v. Murray, (C. C.) 54 Fed. 624; Ingram v. Colgnn, 106 Cal. 113, 38 Pac. 315, 28 L. R. A. 187, 46 Am. St. Rep. 221.

Bonus, as compared with bounty, suggests the idea of a gratuity to induce a money trans- action between individuals; a percentage or gift, upon a loan or transfer of property, or a surrender of a right. Abbott.

—Bounty lands. Portions of the public do- main given to soldiers for military services, by way of bounty.— Bonnty of Queen Anne. A name given to a royal charter, which was con- firmed by 2 Anne. e. 11, whereby all the revenue of first-fruits and tenths was vested in trustees, to form a perpetual fund for the augmentation

of poor ecclesiastical livings. Wharton.— Mili- tary bonnty land. Land granted by various laws of the United States, by way of bounty, to soldiers for services rendered in the army ; being given in lieu of a money payment.

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5e apparatus — Carried into the 5th edition (1979).

## BOURG.

In old Freneh law. An as- semblage of houses surrounded with walls; a fortified town or village.

In old English law. A borough, a vil- lage.

5e apparatus — Not carried into the 5th edition (1979).

## BOURGEOIS.

In old French law. The Inhabitant of a bourg, (q. v.)

A person entitled to the privileges of a mu- nicipal corporation; a burgess.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Molière, Le Bourgeois gentilhomme, 1670]**

Monsieur Jourdain, the bourgeois gentleman, apes the nobility — to the delight of his tailor and his philosophy master. (paraphrase) (paraphrase)

Why: The title names the entry: the town-dwelling burgher, entitled to municipal standing, reaching above it.

## BOURSE.

Fr. An exchange; a stock- exchange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frank Norris, The Pit, 1903]**

In the Chicago wheat pit, bulls and bears battle over grain futures on the exchange floor. (paraphrase) (paraphrase)

Why: A novel of the exchange itself — the bourse as the arena of speculation the entry defines.

## BOURSE DE COMMERCE.

In the

French law. An aggregation, sanctioned by government, of merchants, captains of ves- sels, exchange agents, and courtiers, the two latter being nominated by the govern- ment, In 'each city which has a bourse. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## BOUSSOEE.

In French marine law. A compass; the mariner's compass.

5e apparatus — Not carried into the 5th edition (1979).

## BOUWERTE.

Dutch. In old New York law. A farm; a farm on which the farmer's family resided.

5e apparatus — Not carried into the 5th edition (1979).

## BOUWMEESTER.

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Dutch. Tn old New York law. A farmer.

5e apparatus — Not carried into the 5th edition (1979).

## BOVATA  TERRAS.

As much land as one ox can cultivate. Said by some to be thirteen, by others eighteen, acres in extent Skene; Spelman; Co. Litt 5 a.

5e apparatus — Not carried into the 5th edition (1979).

## BOW-BEARER.

An under-officer of the forest, whose duty It was to oversee and true inquisition make, as well of sworn men as unsworn, in every bailiwick of the forest; and of all manner of trespasses done, either to vert or venison, and cause them to be pre- sented, without any concealment, In the next court of attachment, etc. Cronip. Jur. 201.

5e apparatus — Carried into the 5th edition (1979).

## B O W Y E R 8.

Manufacturers of bows and shafts. An ancient company of the city of London.

5e apparatus — Not carried into the 5th edition (1979).

## BOYCOTT.

A conspiracy formed and In- tended directly or indirectly to prevent the carrying on of any lawful business, or to Injure the business of any one by wrongfully preventing those who would be customers from buying anything from or employing the representatives of said business, by threats, intimidation, or other forcible means. Gray v. Building Trades Council, 91 Minn. 171, 97

N. W. 663, 63 L. R. A. 753, 103 Am. St. Rep. 477; State v. Gliddeu. 55 Conn. 46, 8 Atl. 890, 3 Am. St Rep. 23; In re Crump, 84 Va.

■927, 6 8. H. 620, 10 Am. St. Rep. 895; Oxley Stave Co. v. International Union (C. C.) 72: Fed. COO; Casey v. Typographical Union (C. C.) 45 Fed. 135, 12 L. R. A. 193 ; Davis v. Starrett, 97 Me. 568, 55 Atl. 516; Barr v. Essex Trades Council, 53 S. J. Eq. 101, 30 Atl. 881; Park v. Druggists’ Ass'n, 175 X. Y. 1, 67 N. E. 136, 62 L. R. A. 632, 0(5 Am. St. Bep. 578.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Clark Johnson, Boycott, 2001]**

The Montgomery bus boycott: a community wrongfully threatened, refusing the buses until the business breaks. (paraphrase) (paraphrase)

Why: A film of a boycott in the entry's sense: concerted action to injure a business by keeping customers away.

## BOZERO.

In Spanish law. An advo- cate; one who pleads the causes of others, or his own, before courts of Justice, either as plaintiff or defendant.

5e apparatus — Not carried into the 5th edition (1979).

## BRACHIUM MARIS.

An arm of the sea. -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## BRACHTUM.

A brewing; the whole quantity of ale brewed at one time, for which tolsestor was paid in some manors. Brecina, a brew-house.

BRAHMIN, BRAHMAN, or BRAMIN.

In Hindu law. A divine; a priest; the first Hindu caste.

5e apparatus — Not carried into the 5th edition (1979).

## BRANCH.

An offshoot, lateral exten- sion, or subdivision.

A branch of a family stock is a group of persons, related among themselves by de- scent from a common ancestor, and related to the main stock by the fact that that com- mon ancestor descends from the original founder or progenitor.

— Branch of the sea. This term, as used at common law, included rivers in which the tide ebbed and flowed. Arnold v. Mundy, 6 N. J. Daw, 86, 10 Atn. Dec. 356. — Branch pilot. One possessing a license, commission, or cer- tificate of competency issued by the proper au- thority and usually after an examination. U.

S. v. Forbes, 25 Fed. Cas. 1141 ; Petterson v. State (Tex. Cr. App.) 58 S. W. 100; Dean v. Healy, 66 Ga. 503 ; State v. Follett, 33 La Ann. 228— Branch railroad. A lateral ex- tension of a main line ; a road connected with or issuing from a main line, but not a mere incident of it and not a mere spur or side-track not one constructed Rimpiy to facilitate the bnsi ness of the chief railway, but designed to havt a business of its own in the transportation oi persona and property to and from places nol reached by the principal line. Akers v. Canal Co.. 43 X. J. Law, 110: I5ilcs v. Railroad Co. 5 Wash. 509. 32 Pac. 211 : Grennan v. .McGreg- or. 78 Cal. 258. 20 Pac. 559: Newhall v. Rail road Co.. 14 111. 274; Blanton v. Knilmnd Co., 86 Va. 618, 10 S. E. 925.

5e apparatus — Carried into the 5th edition (1979).

## BRAND.

To stamp; to mark, either with a hot iron or with a stencil plate. Dibble v. Hathaway, 11 Hun (X. Y.) 575.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

Hester Prynne's scarlet A — a mark of shame worn in public as punishment. (paraphrase) (paraphrase)

Why: Borderline but genuine: literature's great mark-of-shame — the figurative brand as punishment, where the

entry's hot iron becomes social stigma. Reasoning states the figurative register plainly.

## BRANDING.

An ancient mode of pun- ishment by inflicting a ninrk on an offender with a hot Iron. It is generally disused In civil law, but Is a recognized punishment for some military offenses.

5e apparatus — Carried into the 5th edition (1979).

## BRANK8.

An instrument formerly used in some parts of England for the correction of scolds; a scolding bridle. It Inclosed the

bead and a sharp piece of iron entered the 'mouth and restrained the tongue.

5e apparatus — Not carried into the 5th edition (1979).

## BRASIATOR.

A maltster, a brewer.

5e apparatus — Not carried into the 5th edition (1979).

## BRASITTM.

Malt.

5e apparatus — Not carried into the 5th edition (1979).

## BRAWL.

A clamorous or tumultuous quarrel in a public place, to the disturbance of the public peace.

In English law, specifically, a noisy quarrel or other uproarious conduct creating a dis- turbance in a church or churchyard. 4 BL Comm. 146; 4 Steph. Comm. 253.

The popular meanings of the words “brawls” and “tumults” are substantially the same and identical. They are correlative terms, the one employed to express the meaning of the other, and are so defined by approved lexicographers. Legally, they mean the same kind of disturbance to the public peace, produced by the same class of agents, and can be well comprehended to de- fine one and the same offense. State v. Perkins, 42 N. H. 464.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, c. 1595]**

The play opens on a clamorous street brawl between Montagues and Capulets, disturbing the public peace. (paraphrase) (paraphrase)

Why: Matches the entry's popular sense first given: a tumultuous quarrel in a public place.

## BREACH.

The breaking or violating of a law, right, or duty, either by commission or omission.

In contracts. The violation or non-ful- filment of an obligation, contract, or duty.

A continuing breach occurs where the state of affairs, or the specific act, constituting the breach, endures for a considerable period of time, or is repeated at short intervals. A

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construc- tive breach of contract takes place when the party bound to perform disables himself from performance by some act, or declares, before the time comes, that he will not perform. i

In pleading. This name is sometimes ‘given to that part of the declaration which -alleges the violation of the defendant’s prom- ise or duty, Immediately preceding the ad damnum clause.

—Breach of eloee. The unlawful or unwar- rantable entry on another person’s soil, land, or ..close. 3 Bl. Comm. 209.— Breach of cove- nant. The nonperformance of any covenant agreed to be performed, or the doing of any act covenanted not to be done. Holthouse.— Breach of dnty. In a general sense, any vio- lation or omission of a legal or moral duty. 'More particularly, the neglect or failure to ful- fill in a just and proper manner the duties of an office or fiduciary employment.— Broach of pound. The breaking any pound or place where cattle or goods distrained are deposited, in order to take them back. 3 Bl. Comm. 146. —Breach of prison. The offense of actually and forcibly breaking a orison or gaol, with in- tent to escape. 4 Chit. Bl. 130, notes; 4 Steph. Comm. 255. The escape from custody of a person lawfully arrested on criminal proc- ess.— Breach of privilege. An act or de- fault in violation of the privilege of either bouse of parliament, of congress, or of a state legislature.— Breach of promise. Violation of a promise ; chiefly used as an elliptical ex- pression for “breach of promise of marriage.”— Breach of the peace. A violation of the public tranquillity and order. The offense of breaking or disturbing the public peace by any riotous, forcible, or unlawful proceeding. 4 Bl. Comm. 142. ei »eq.; People v. Bartz, 53 Mich. 4113, 19 X. W. 161 ; State v. White. IS

R. I. 473, 28 Atl. 908: People v. Wallace. 85 App. Iliv. 170. 83 X. Y. Supp. 130; Kcnugalc v. Sweet, 124 Mich. 311, 82 X. W. 1061. A

constructive breach of the peace is an unlawful act which, though wanting the elements of ac- tual violence or injury to any person, is yet in- consistent with the peaceable and orderly con- duct of society. Various kinds of misdemeanors are included in this general designation, such as sending challenges to fight, going armed in pub- lic without lawful reason and in a threatening manner, etc. An apprehended breach of the peace is caused by the conduct of a man who threatens another with violence or physical in- jury, or who goes about in public with danger- ous and unusual weapons in a threatening or alarming* manner, or who publishes an aggravat- ed libel upon another, etc.— Breach of trust. Any act done by a trustee contrary to the terms of his trust, or in excess of his authority and to the detriment of the trust ; or the wrongful omission by a trustee of any act required of him by the terms of the trust. Also the wrong- ful misappropriation by a trustee of any fund or property which had been lawfully committed to him in a fiduciary character.— Breach of warranty. In real property law and the law of insurance. The failure or falsehood of an affirmative promise or statement, or the non- performance of an executory stipulation. Hen- dricks v. Insurance Co., 8 Johns. (N. Y.) 13: Fitzgerald v. Ben. Ass’n, 39 App. Div. 231'. 56

X. Y. Supp. 1005 ; Stewart v. Drake, 9 N. J. Law, 139.

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5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, The Pickwick Papers, 1836]**

Mrs. Bardell sues Mr. Pickwick for breach of promise of marriage — the great comic breach-of-promise action. (paraphrase) (paraphrase)

Why: A genuine fictional breach: the violation of an obligation (here, a promised marriage), tried at law within the novel.

## BREAD  ACTS.

Laws providing for tbe sustenance of persons kept in prison for debt.

5e apparatus — Not carried into the 5th edition (1979).

## BREAKING.

Forcibly separating, part- ing, disintegrating, or piercing any solid sub- stance. In tbe law as to housebreaking and burglary, It means the tearing away or re- moval of any part of a house or of the locks, latches, or other fastenings intended to secure it, or otherwise exerting force to gain an en- trance, with the intent to commit a felony; or violently or forcibly breaking out of a house, after having unlawfully entered it, in the attempt to escape. Gaddie v. Com., 117 Ky. 468, 78 S. W. 163, 111 Am. St Rep. 259; Sims v. State, 136 Ind. 358, 36 N. E. 278; Melton v. State, 24 Tex. App. 287, 6 S. W. 303; Mathews v. State, 36 Tex. 675; Carter v. State, 68 Ala. 98; State v. Newbegin, 25 Me. 503; McCourt v. People, 64 N. Y. 585.

In the law of burglary, “constructive” break- ing, as distinguished from actual, forcible break- ing, may be classed under the following heads: (1) Entries obtained by threats; (2) when, in consequence of violence done or threatened in order to obtain entry, the owner, with a view more effectually to repel it, opens the door and sallies out and the felon eaters; (3) when en- trance is obtained by procuring the service of some intermediate person, such aB a servant, to remove the fastening ; (4) when some process of law is fraudulently resorted to for the pur- pose of obtaining an entrance ; (5) when some trick is resorted to to induce the owner to re- move tbe fastenings and open the door. State v. Henry. 31 N. C. 468 ; Clarke v. Com.. 25 Grat. (Va.) 912; Ducher v. State, 18 Ohio, 317 ; Johnston v. Com.. 85 Pa. 64, 27 Am. Itcp. 622; Xicholls v. State, 68 Wis. 416, 32

X. W. 543, 60 Am. Rep. 870.

— Breaking a ease. The expression by the judges of a court, to one another, of their views of a case, in order to ascertain how far they are agreed, and as preliminary to the formal delivery of their opinions. “We are breaking the case, that we may show what is in doubt with any of us." Holt, C. J.. addressing Dol- bin, J., 1 Show. 423. — Breaking bulk. The

offense committed by a bailee (particularly a carrier) in opening or unpacking the chest, par- cel, or case containing goods intrusted to his care, and removing the goods and converting them to his own use.— Breaking doors. For- cibly removing the fastenings of a house, so that a person may enter.— Breaking jail. The act of a prisoner in effecting his

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escape from a place of lawful confinement. Escape , while denoting the offense of the prisoner in un- lawfully leaving the jail, may also connote the fault or negligence of the sheriff or keeper, and hence is of wider significance than “breaking jail” or “prison-breach.”— Breaking of ar- restment. In Scotch law. The contempt of the law committed by an arrestee who disre- gards the arrestment used in his hands, and pays the sum or delivers the goods arrested to the debtor. Tbe breaker is liable to the arrest- er in damages. See Arbebtment. [TEXT INCOMPLETE — scan limitation]

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: BREAKING in the burglary sense — forcibly piercing the dwelling to enter — is the actus reus addressed in Ex 22:2: the thief 'breaking up' (breaking in) by night may be slain without blood-guilt, the law distinguishin...

**[Humanity] — Humanity / Fiction & Film**

**[Director: Jules Dassin, Rififi, 1955]**

A four-man crew executes a near-silent jewelry burglary — forcing entry with felonious intent, in one unbroken sequence. (paraphrase) (paraphrase)

Why: Borderline but genuine: cinema's canonical depiction of felonious breaking — the act-element of burglary the entry defines, rather than its doctrine.

## BREAST OF THE COURT.

A meta- phorical expression, signifying the con- science, discretion, or recollection of the judge. During the term of a court, the rec- ord is said to remain “in the breast of the Judges of the court and in their remem- brance.” Co. Litt. 260a; 3 Bl. Comm. 407.

5e apparatus — Carried into the 5th edition (1979).

## BREATH.

In medical jurisprudence. The air expelled from the lungs at each ex- piration.

5e apparatus — Not carried into the 5th edition (1979).

## BREDWITE.

In Saxon and old English* law. A fine, penalty, or amercement im- posed for defaults in the assise of bread. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BREHON.

In old Irish law. A Judge. I Bl. Comm. 100. Brehons, ( breitheamhuin ,) judges.

5e apparatus — Not carried into the 5th edition (1979).

## BREHON LAW.

The name given to the ancient system of law of Ireland as it ex- isted at the time of its conquest by Henry* II.; and derived from the title of tbe judges, who were denominated “Brehons.”

5e apparatus — Not carried into the 5th edition (1979).

## BRENAGIUM.

A payment In bran, which tenants anciently made to feed their lords’ hounds.

5e apparatus — Not carried into the 5th edition (1979).

## BREPHOTROPHX.

In tbe civil law. Persons appointed to take care of houses destined to receive foundlings.

5e apparatus — Not carried into the 5th edition (1979).

## BRETHREN.

This word, in a will, may Include sisters, as well as brothers, of the person indicated; it is not necessarily limited to the masculine gender. Terry v. Brunson, 1 Rich. Eq. (S. C.) 78.

5e apparatus — Carried into the 5th edition (1979).

## BRETTS AND SCOTTS, LAWS OF / THE.

A code or system of laws in use among the Celtic tribes of Scotland down to the beginning of the fourteenth century, and then abolished by Edward 1. of England.

5e apparatus — Not carried into the 5th edition (1979).

## BRETTWALDA.

In Saxon law. The ruler of the Saxon heptarchy.

5e apparatus — Not carried into the 5th edition (1979).

## BREVE.

L. hat. A writ An original writ. A writ or precept of the king Issuing out of his courts.

A writ by which a person Is summoned or attached to answer an action, complaint, etc., or whereby anything . is commanded to bo done in the courts, In order to Justice, etc. It Is called "breve,” from the brevity of it, and Is addressed either to the defendant him- self, or to the chancellors, judges, sheriffs, or other officers. Skene.

— Breve de recto. A writ of right, or license for a person ejected out of an estate, to sue for the possession of it.— Breve innomtnatam. A writ making only a general complaint, with- out the details or particulars of the cause of action.— Breve nominatam. A named writ. A writ stating the circumstances or details of the cause of action, with the time, place, and demand, very particularly.— Breve orljginale. An original writ ; a writ which gave ongin and commencement to a suit. — Breve perquirere. To purchase a writ or license of trial in the king's courts by the plaintiff.— Breve testa- tum. A written memorandum introduced to perpetuate the tenor of the conveyance and in- vestiture of lands. 2 Bl. Comm. 307. In Scotch law. A similar memorandum made out at the time of the transfer, attested by the pares curia and by the seal of the superior. Bell.

Breve ita dieltur, quia rem de qua sgitar, et Intentionem petentis, pauols verbis breviter enarrat. A writ is so call- ed because It briefly states, In few words, the matter In dispute, and the. object of the party seeking relief. 2 Inst. 39.

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Breve judicial* debet sequl suum orlg- iamle, et aoeessorium suum principals.

Jenk. Cent. 292. A judicial writ ought to follow its original, and an accessory its prin- cipal.

Breve judieiale non cadit pro defectu formes. Jenk. Cent. 43. A judicial writ falls not through defect of form.

5e apparatus — Carried into the 5th edition (1979).

## BREVET.

In military law. A com- mission by which an officer Is promoted to the next higher rank, but without confer- ring a right to a corresponding Increase of pay.

In French law. A privilege or warrant granted by the government to a private per- son, authorizing him to take a special bene- fit or exercise an exclusive privilege. Thus a brevet d’ invert lion is a patent for an inven- tion.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BREVXA.

Lat. Writs. The plural of breve, which see.

— Brevia adversaria. Adversary writs ; writs brought by an adversary to recover land. 6 Coke, 67.— Brevia amlcabilia. Amicable or friendly writs ; writs brought by agreement or consent of the parties.— Brevia antlclpan- tia. At common law. Anticipating or pre- ventive writs. Six were included in this cate- gory. vis.: Writ of mesne; icarrantia charter;

monstraverunt ; audita querela; curia clauden- 4a; and ne in juste vexes. Peters v. Linea- echmidt, 58 Mo. 466.— Brevia de cursu. Writ* of course. Formal writs issuing as of

course.— Brevia formata. Certain writs of approved and established form which were granted of course in actions to which they were applicable, and which could not be changed but by consent of the great council of the realm. Bract, fol. 4136.— Brevia judicial la. Judicial writs. Auxiliary writs issued from the court during the progress of an action, or in aid of the judgment.— Brevia magistrulia. Writs occasionally issued by the masters or clerks of chancery, the form of which was varied to suit the circumstances of each case. Bract, fol. 4136.— Brevia aelecta. Choice or selected writs or processes. Often abbreviated to Brev. Sel.— Brevia testata. The name of the short memoranda early used to show grants of lands out of which the deeds now in use have grown. Jacob.

Brevia, tarn original ia quam judl- clalia, patiuntur Aagliea aomina. 10

Coke, 132. Writs, as well original as Judi- cial, bear English names.

5e apparatus — Not carried into the 5th edition (1979).

## BREVIARITTM AXAHICIANTTM.

A

compilation of Roman law made by order of Alaric II., king of the Visigoths, in Spain, and

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published for the use of his Roman sub- jects in the year 506.

5e apparatus — Not carried into the 5th edition (1979).

## BREVIARITJM ANIAKT.

Another name for the Brevarium Alaricianum, (q. v.) Anian was the referendery or chancellor of Alaric, and was commanded by the latter to authen- ticate, by his signature, the copies of the breviary sent to the comites. Mackeld. Rom. Law, 5 68.

5e apparatus — Not carried into the 5th edition (1979).

## BREVIATE.

A brief; brief statement, epitome, or abstract. A short statement of contents, accompanying a bill in parliament Holthouse. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## BREVIBUS ET ROTTJLI8 LIBEKAN- / DXS.

A writ or mandate to a sheriff to de- liver to his successor the county, and ap- purtenances, with the rolls, briefs, remem- brance, and all other things belonging to his office. Reg. Orig. 295.

5e apparatus — Not carried into the 5th edition (1979).

## BREWER.

One who manufactures fer- mented liquors of any name or description, for sale, from malt, wholly or in part, or from any substitute therefor. Act July 13, 1866, j 9, (U St. at Large, 117.) U. S. v. Dooley, 25 Fed. Cas. 890; U. S. v. Wittig, 28 Fed. Cas. 745.

5e apparatus — Carried into the 5th edition (1979).

## BRIBE.

Any valuable thing given or promised, or any preferment, advantage, privilege, or emolument, given or promised corruptly and against the law, as an induce- ment to any person acting in an official or public capacity to violate or forbear from his duty, or to improperly influence his behavior in the performance of such duty.

The term "bribe” signifies any money, goods, right in action, property, thing of val- ue, or advantage, present or prospective, or any promise or undertaking to give any, asked, given, or accepted, with a corrupt in- tent to influence unlawfully the person to

whom It is given. In bis action, vote, or opinion, in any public or official capacity. I*en. Code Dak. § 774. Pen. Code Cal. 1003, 8 7 ; Pen. Code Tex. 1895, art. 144 ; People v. Van de Carr, 87 App. Illv. 386, 84 N. X. Supp. 461 : People v. Ward, 110 Cal. 369, 42 Pac. 894 ; Com. v. Headley, ill Ky. 815, 64 S. W. 744.

5e apparatus — Carried into the 5th edition (1979).

## BRIBERY.

In criminal law. The re- ceiving or offering any undue reward by or to any person

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whomsoever, whose ordinary profession or business relates to the admin- istration of public justice, In order to influ- ence his behavior in office, and to inelinb him to act contrary to his duty and the known rules of honesty and integrity. Ilali v. Mar- shall, 80 Ky. 552 ; Walsh v. People, 65 111. 65, 16 Am. Rep. 569; Com. v. Murray, 135 Mass. 530; Hutchinson v. State, 36 Tex. 294.

The term “bribery” now extends further, and includes the offense of giving a bribe to many other classes of officers ; it applies both to the actor and receiver, and extends to voters, cab- inet ministers, legislators, sheriffs, and other classes. 2 Whart. Crim. Law, i 1858.

The offense of taking any undue reward by a judge, juror, or other person concerned in the administration of justice, or by a pub- lic officer, to influence his behavior in his office. 4 Bl. Comm. 139, and note.

Bribery is the giving or receiving any un- due reward to influence the behavior of the person receiving such reward in the dis- charge of his duty, in any office of govern- ment or of justice. Code Ga. 1882, § 4469.

The crime, of offering any undue reward or remuneration to any public officer of the crown, or other person intrusted with a public duty, vvith a view to influence his behavior in the discharge of his duty. The taking such reward is as much bribery as the offering it. It also sometimes signifies the taking or giving a re- ward for public office. The offense is not con- fined, as some have supposed, to judicial officers. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:8, KJV]**

And thou shalt take no gift: for the gift blindeth the wise, and perverteth the words of the righteous.

Why: BRIBERY — the receiving or offering of undue reward to influence official conduct — is directly criminalized in Ex 23:8: the 'gift' that blinds the wise and perverts judgment. The verse states both the prohibition and…

**[Humanity] — Humanity / Fiction & Film**

**[Director: Sidney Lumet, Serpico, 1973]**

Serpico refuses the payoffs flowing through his precinct and pays for his honesty. (paraphrase) (paraphrase)

Why: A film about bribery in the entry's precise sense: undue reward offered to those in the administration of public justice to incline them contrary to duty.

## BRIBERY AT ELECTIONS.

The of- fense committed by one who gives or prom- ises or offers money or any valuable induce- ment to an elector, in order to corruptly induce the latter to vote in a particular way or to abstain from voting, or as a re- ward to the voter for having voted in a par- ticular way or abstained from voting.

5e apparatus — Carried into the 5th edition (1979).

## BRIBOUR.

One that pilfers other men’s goods ; a thief.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: BRIBOUR is 'one that pilfers other men's goods; a thief.' Exodus 20:15 is the direct divine prohibition of the thief's act — the shortest and most absolute criminalization of theft in the tradition the common law grew…

## BRICOLIB.

An engine by which walls were beaten down. Blount

5e apparatus — Not carried into the 5th edition (1979).

## BRIDEWELL.

In England. A house of correction.

5e apparatus — Carried into the 5th edition (1979).

## BRIDGE.

A structure erected over a river, creek, stream, ditch, ravine, or other place, to facilitate the passage thereof; in- cluding by the term both arches and abut- ments. Bridge Co. v. Railroad Co., 17 Conn.

56, 42 Am. Dec. 716; Proprietors of Bridges v. Land Imp. Co.. 13 N. J. Eq. 511; Rusch v. DaveniHirt, 6 Iowa, 455 ; Wliltall v. Glou- cester County, 40 N. J. Law, 305.

A building of stone or wood erected across a river, for the common ease and benefit of travelers. Jacob.

Bridges are either public or private. Pub- lic bridges are such as form a part of the highway, common, according to their char- acter as foot, horse, or carriage bridges, to the public generally, with or without toll. State v. Street, 117 Ala. 203, 23 South. 807; Everett v. Bailey, 150 Pa. 152, 24 Atl. 700; Rex v. Bucks County, 12 East. 204.

A private bridge is one which is not open to the use of the public generally, and does not form part of the highway, but is reserved for the use of those who erected it, or their successors, and their licensees. Rex v. Bucks County, 12 East, 192.

5e apparatus — Not carried into the 5th edition (1979).

## BRIDGE-MASTERS.

Persons chosen by the citizens, to have the care and super- vision of bridges, and having certain fees and profits belonging to their office, as in the case of London Bridge.

BRIDLE ROAD. ' In the location of a private way laid out by the selectmen, and accepted by the town, a description of it as a “bridle road”- does not confine the right of way to a particular class of animals or spe- cial mode of use. Flugg v. Flagg, 16 Gray (Mass.) 175.

5e apparatus — Not carried into the 5th edition (1979).

## BRIEF.

In general. A written docu- ment; a letter; a writing in the form of a letter. A summary, abstract, or epitome. A condensed statement of some larger docu- ment, or of a series of papers, facts, or prop- ositions.

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An epitome or condensed summary of the facts and circumstances, or proimsitions of law, constituting the case proposed to be set up by either party to an action about to be tried or argued.

In English practice. A document pre- pared by the attorney, and given to the bar- rister, before the trial of a cause, for the in- struction and guidance of the latter. It con- tains, in general, all the information neces- sary to enable the barrister to successfully conduct their client's case in court, such as •a statement of the facts, a summary of the pleadings, the names of the witnesses, and an outline of the evidence expected from them, and any suggestions arising out of the peculiarities of the case.

In American practice. A written or

printed document, prepared by counsel to serve as the basis for an argument upon a cause in an appellate court and usually filed for the Information of the court. It embod- ies the points of law which the counsel de- sires to establish, together with the argumerits and authorities upon which he rests his contention.

A brief, within a rule of court requiring coun- sel to furnish briefs, before argument, implies some kind of statement of the case for the infor- mation of the court. Gardner v. Stover, 43 Ind. 356.

In Scotch law. Brief is used in the sense of “writ,” and this seems to be the sense in which the word is used in very many of the ancient writers.

In ecclesiastical law. A papal rescript sealed with wax. See Buix.

—Brief a l’evesque. A writ to the bishop which, in qvare impedit, shall go to remove an incumbent, unless he recover or be presented pendente life. 1 Keb. 386.— Brief of title. In practice. A methodical epitome of all the patents, conveyances, incumbrances, liens, court proceedings, and other matters affecting the title to a certain portion of real estate.— Brief out of the chancery. In Scotch law. A writ issued in the name of the sovereign in the election of tutors to minors, the cognoscing of lunatics or of idiots, and the ascertaining the widow’s terce ; and sometimes in dividing the property belonging to heirs-portioners. In these cases only brieves are now in use. Bell.— Brief papal. In ecclesiastical law. The pope's let- ter upon matters of discipline.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Alan J. Pakula, The Pelican Brief, 1993]**

A law student's legal brief theorizing two assassinations puts its author — and everyone near the brief — in mortal danger. (paraphrase) (paraphrase)

Why: The title names the entry: a condensed statement of facts and propositions of law — here, one that kills.

## BRIEVE.

In Scotch law. A writ. 1 Karnes, Eq. 146.

5e apparatus — Not carried into the 5th edition (1979).

## BRIGA.

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In old European law. Strife, contention, litigation, controversy.

BRIGANDHtE. A coat of mall or an- cient armour, consisting of numerous jointed scale-like plates, very pliant and easy for the body, mentioned in 4 & 5 P. & M. c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## BRIGBOTB.

In Saxon and old English law. A tribute or contribution towards the" repairing of bridges.

5e apparatus — Not carried into the 5th edition (1979).

## BRING SUIT.

To “bring” an action or suit has a settled customary meaning at law, and refers to the initatlon of legal proceed- ings in a suit.- A suit is '“brought” at the time it is commenced. Ilames v. Judd (Com.

PL) 9 N. Y. Supp. 743; Rawle v. Phelps, 20 Fed. Cas. 321 : Goldenberg v. Murphy, 108 tf. S. 162, 2 Sup. Ct. 388, 27 L. Ed. 686; Buecker v. Carr, 60 N. J. Eq. 300, 47 AG. 34.

5e apparatus — Carried into the 5th edition (1979).

## BRINGING MONET INTO COURT.

The act of depositing money In the custody of a court or of its clerk or marshal, for the purpose of satisfying a debt or duty, or to await the result of an Interpleader. Dirks v. Juel, 39 Neb. 353, 80 N. IV. 1045.

5e apparatus — Not carried into the 5th edition (1979).

## BRIS.

In French maritime law. Liter- ally, breaking; wreck. Distinguished from naufrage, (q. v .)

5e apparatus — Not carried into the 5th edition (1979).

## BRISTOL BARGAIN.

In English law. A contract by which A. lends B. £1,000 on good security, and it is agreed that £500. to- gether with interest, shall be paid at a Gme

stated ; and, as to the other £500, that B., in consideration thereof, shall pay to A. £100 per annum for seven years. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## BRITISH COLUMBIA.

The territory on the north-west coast of North America, oqce known by the designation of “New Cal- edonia.” Its government is provided for by 21 & 22 Viet. c. 99. Vancouver Island is united to it by the 29 & 30 Viet. c. 67. See 33 & 34 Viet. c. 06.

5e apparatus — Not carried into the 5th edition (1979).

## BROCAGE.

The wages, commission, or pay of a broker, (also called “brokerage.") Also the avocation or business of a broker.

5e apparatus — Not carried into the 5th edition (1979).

## BROCARD.

In old English law. A legal maxim. “Brocardica Juris," the title of a small book of legal maxims, published at Paris, 1508.

5e apparatus — Not carried into the 5th edition (1979).

## BROCARIUS, BROCATOR.

In old Eng- lish and Scotch law. A broker; a middle- man between buyer and seller; the agent of both transacting parties. Bell; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BROCELLA.

In old English law. A wood, a thicket or covert of bushes and brushwood. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BROKEN STOWAGE.

In maritime lnw. That space in a ship which is not filled by her cargo.

5e apparatus — Carried into the 5th edition (1979).

## BROKER.

An agent employed to make bargains and contracts between other per- sons, in matters of trade, commerce, or nav- igation, for a compensation commonly called “brokerage.” Story, Ag. I 28.

Those who are engaged for others In the negotiation of contracts relative to property, with the custody of which they have no con- cern. Paley, Prin. & Ag. 13.

The broker or intermediary is he who Is employed to negotiate a matter between two parties, and who, for that reason, is consid- ered as the mandatary of both. Civil Code La. art. 3010.

One whose business is to negotiate pur- chases or sales of stocks, exchange, bullion, coined money, bank-notes, promissory notes, or other securities, for himself or for others. Ordinarily, the term “broker" is applied to one acting for others ; but the part of the definition which speaks of purchases and sales for himself is equally important ns that which spenks of sales and purchases for others. Warren v. Shook, 91 U. S. 710, 23

L. Ed. 421.

A broker is a mere negotiator between other parties, and does not net in his own name, but in the name of those who employ him. Henderson v. State, 50 Ind. 234.

Brokers are persons whose business it is to bring buyer and seller together ; they need have nothing to do with negotiating the bar- gain. Keys v. Johnson. 68 Pa. 42.

The difference between a factor or commis- sion merchant and a broker is this: A faetoi

may buy and sell in his own name, and he has the goods in his possession : while a broker,

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as such, cannot ordinarily buy or sell in his own name, and has no possession of the goods sold. Slack v. Tucker, 25 Wall. 321, 330, 23 L. Ed. 143.

The legal distinction between a broker and a factor is that the factor is intrusted with the property the subject of the agency ; the broker is only employed to make a bargain in relation to it. Perkins v. State, 50 Ala. 154, 156.

Brokers are of many kinds, the most im- portant being enumerated and defined as follows:

Exchange brokers, who negotiate for- eign bills of exchange.

Insurance brokers, who procure insur- ances for those who employ them and nego- tiate between the party seeking insurance and the companies or their agents.

Merchandise brokers, who buy and sell goods and negotiate between buyer and sell- er, but without having the custody of the property.

Note brokers, who negotiate the discount or sale of commercial paper.

Pawnbrokers, who lend money on goods deposited with them In pledge, taking high rates of interest

Real-estate brokers, who procure the purchase or sale of land, acting as interme- diary between vendor and purchaser to bring them together and arrange terms; and who negotiate loans on real-estate security, man- age and lease estates, etc. Latta v. Kil- bourn, 150 U. S. 524, 14 Sup. Ct 201, 37

L. Ed. 160; Chadwick v. Collins, 26 Pa. 130; Brauckman v. Leighton, 60 Mo. App. 42.

Ship-brokers, who transact business be- tween the owners of ships and freighters or charterers, and negotiate the sale of vessels.

Stock-brokers, who are employed to buy and sell for their principals all kinds of stocks, corporation bonds, debentures, shares in companies, government securities, munic- ipal bonds, etc.

Money-broker. A money-changer ; a scrivener or jobber; one who lends or raises money to or for others.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Director: Martin Scorsese, The Wolf of Wall Street, 2013]**

Jordan Belfort, stockbroker, makes his bargains between others for commission — and for fraud. (paraphrase) (paraphrase)

Why: The film's protagonist is a broker in the entry's sense: an agent making bargains between others in trade, for compensation.

## BROKERAGE.

The wages or commis- sions of a broker; also, his business or occu- pation.

5e apparatus — Carried into the 5th edition (1979).

## BROSSUS.

Bruised, or injured with blows, wounds, or other casualty. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## BROTHEL.

A bawdy-house; a house of ill fame ; a common habitation of prostitutes.

5e apparatus — Not carried into the 5th edition (1979).

## BROTHER.

One person is a brother “of the whole blood” to another, the former be- ing a male, when both are born from the same father and mother. lie is a brother “of the half blood” to that other (or half- brother) when the two are born to the same

father by different mothers or by the same mother to different fathers.

In the civil law,' the following distinctions are observed: Two brothers who descend from the same father, but by different mothers, are call- ed “consanguine" brothers. If they have the same mother, but are begotten by different fa- thers, they are called "uterine” brothers. If they have both the same father and mother, they are denominated brothers “germane.”

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, The Brothers Karamazov, 1880]**

Dmitri, Ivan, and Alyosha — Dmitri by their father's first wife, Ivan and Alyosha by his second: literally half-brothers in the entry's technical sense. (paraphrase) (paraphrase)

Why: Stronger than it first looked: the novel dramatizes the whole-blood/half-blood distinction itself — three brothers, two mothers.

## BROTHER-IN-LAW.

A wife’s brother or a sister’s husband. There is not any re- lationship, but only affinity, between broth- ers-In-law. Farmers’ L. & T. Co. v. Iowa Water Co. (C. C.) 80 Fed. 469. See State v. Foster, 112 La. 533, 36 South. 554.

5e apparatus — Carried into the 5th edition (1979).

## BRUARIUM.

In old English law. A heath ground; ground where heath grows. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## BRUGBOTE.

See Briqbote.

5e apparatus — Not carried into the 5th edition (1979).

## BRUILLUS.

In old English law. A wood or grove; a thicket or clump of trees in a park or forest Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BRUISE.

In medical jurisprudence. A contusion; an injury upon the flesh of a per- son with a blunt or heavy instrument with-, out solution of continuity, or without break- ing the skin. Shadock v.

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Road Co., 79 Mich. 7, 44 N. W. 158; State v. Owen, 5 N. C. 452, 4 Am. Dec. 571.

5e apparatus — Not carried into the 5th edition (1979).

## BRUKBARN.

In old Swedish law. The child of a woman conceiving after a rape, which was made legitimate. Literally, the child of a struggle. Burrill.

5e apparatus — Not carried into the 5th edition (1979).

## BRUTUM FULMEN.

An empty noise; an empty threat

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BUBBLE.

An extravagant or unsubstan- tial project for extensive operations in busi- ness or commerce, generally founded on a fictitious or exaggerated prospectus, to en- snare unwary investors. Companies formed on such a basis or for such purposes are called "bubble companies." The term is chiefly used in England.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Anthony Trollope, The Way We Live Now, 1875]**

Melmotte's empire — built on a fictitious prospectus — ensnares investors and collapses. (paraphrase) (paraphrase)

Why: The great fictional bubble company: an extravagant unsubstantial project on an exaggerated prospectus, exactly the entry's definition.

## BUBBLE ACT.

The statute 6 Geo. I. c. 18, "for restraining several extravagant and unwarrantable practices herein mentioned," was so called. It prescribed penalties for the formation of companies with little or no cap- ital, with the intention, by means of allur- ing advertisements, of obtaining money from the public by the sale of shares. Such un- dertakings were then commonly called "bub- bles." This legislation was prompted by the collapse of the "South Sea Project," which, as Blackstone says, "had beggared half the nation." It was mostly repealed by the stat- ute 6 Geo. IV. c. 91.

5e apparatus — Carried into the 5th edition (1979).

## BUCKET SHOP.

An office or place (oth- er than a regularly Incorporated or licensed

exchange) where information is posted as to the fluctuating prices of stocks, grain, cot- ton, or other commodities, and where persons lay wagers on the rise and fall of such prices under the pretence of buying and sell- ing such commodities. Bryant v. W. U. TeL Co. (C. C.) 17 Fed. 828 ; Fortenbury v. State, 47 Ark. 188, 1 S. W. 58; Connor v. Black, 119 Mo. 126, 24 S. W. 184 ; Smith v. W. U. Tel. Co., 84 Ky. 664, 2 S. W. 483 ; Bates' Ann. St. Ohio, 1904, |

6934a.

5e apparatus — Carried into the 5th edition (1979).

## BUCKSTALL.

A toil, net, or snare, to take deer. 4 Inst. 306.

5e apparatus — Not carried into the 5th edition (1979).

## BUDGET.

A name given in England to the statement annually presented to parlia- ment by the chancellor of the exchequer, con- taining the estimates of the national revenue and expenditure.

5e apparatus — Carried into the 5th edition (1979).

## BUGGERY.

A carnal copulation against nature ; and this is either by the confusion of species, — that is to say, a man or a woman with a brute beast, — or of sexes, as a man with a man, or man unnaturally with a wo- man. 3 Inst 58; 12 Coke, 36. Ausinan ▼. Veal, 10 Ind. 356, 71 Am. Dec. 331; Com. v. J., 21 Pa. Co. Ct. R. 626.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 18:22, KJV]**

Thou shalt not lie with mankind, as with womankind: it is abomination.

Why: BUGGERY — carnal copulation against nature — was a capital offense at common law; Lev 18:22 is the direct scriptural prohibition of the act, distinct from Lev 18:23 (already deployed at BESTIAUTY) though in the same c…

## BUILDING.

A structure or edifice erect- ed by the hand of man, composed of natural materials, as stone or wood, and Intended for use or convenience. Trueadell v. Gray, 13 Gray (Mass.) 311; State v. Moore, 61 Mo. 276; Clark v. State, 69 Wis. 203, 33 N. W. 436, 2 Am. St. Bep. 732.

— Building line. See Link. TION. An organization created for the pur- pose of accumulating a fund by the monthly subscriptions and savings of its members to assist them in building or purchasing for themselves dwellings or real estate by the loan to them of the requisite money from the funds of the association. McCauley v. Association, 97 Tenn. 421, 37 S. W. 212, 35

L. R. A 244, 56 Am. St. Rep. S13 ; Cook v. Association, 104 Ga. 814, 30 S. E. 911 ; Pfels- ter v. Association, 19 W. Va. 693.

5e apparatus — Carried into the 5th edition (1979).

## BUILDING LEASE.

A lease of land for a long term of years, usually 99, at a rent called a “ground rent,” the lessee covenant- ing to erect certain edifices thereon according to specification, and to maintain the same, etc., during the term.

5e apparatus — Carried into the 5th edition (1979).

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## BUILDING LIEN.

The statutory lien of a material-man or contractor for the erection of a building. Lumber Co. v. Holt, 60 Neb. 80, 82 N. W. 112, 83 Am. St. Rep. 512 ; June v. Doke, 35 Tex. Civ. App. 240, 80 S. W. 406.

5e apparatus — Not carried into the 5th edition (1979).

## BUILDING SOCIETY.

An association in which the subscriptions of the members

form a capital stock or fund out of which ad- vances may be made to members desiring them, on mortgage security.

5e apparatus — Not carried into the 5th edition (1979).

## BUL.

In the ancient Hebrew chronology, the eighth month of the ecclesiastical, and the second of the civil year. It has since been called "Marahevan," and answers to our October.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Kings 6:38, KJV]**

And in the eleventh year, in the month Bul, which is the eighth month, was the house finished throughout all the parts thereof, and according to all the fashion of it.

Why: This verse is the primary scriptural attestation of the term itself — the entry defines the Hebrew month Bul, and the verse names it as the eighth month, anchoring the definition.

## BULK.

Unbroken packages. Merchan- dise which is neither counted, weighed, nor measured.

Bulk is said of that which is neither count- ed, weighed, nor measured. A sale by the bulk is the sale of a quantity such as it is, without measuring, counting, or weighing. Civil Code La. art 3556, par. 6.

BULL, In ecclesiastical law. An instru- ment granted by the pope of Rome, and sealed with a seal of lead, containing some decree, commandment or other public act emanating from the pontiff. Bull, in this sense, corresponds with edict or letters pat- ent from other governments. Cowell ; 4 Bl. Comm. 110; 4 Steph. Comm. 177, 179.

This is also a cant term of the Stock Ex- change, meaning one who speculates for a rise in the market.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 6 — Bulk Sales]**

The entry's 'sale by the bulk' is the commercial-law ancestor of the bulk-transfer regime now codified in UCC Article 6, which polices bulk sales of a merchant's inventory to protect creditors against fraudulent conveyance.

Why: Genuine, not forced: 'bulk sale' is a term of art in Article 6, and the entry defines exactly the transaction (sale of a quantity as it stands, unmeasured) that the statute regulates; the link is doctrinal continuity,…

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## BULLA.

A seal used by the Rornnn em- perors, during the lower empire; and which was of four kinds, — gold, silver, wax, and lead.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Esther 8:8, KJV]**

Write ye also for the Jews, as it liketh you, in the king's name, and seal it with the king's ring: for the writing which is written in the king's name, and sealed with the king's ring, may no man reverse.

Why: A bulla is an official seal of authority; this verse states the legal force such sealing carried — an instrument sealed by the sovereign's ring could not be reversed — genuinely illuminating the seal's legal function.

## BULLETIN.

An officially published no- tice or announcement concerning the progress of matters of public Importance. In France, the registry of the laws.

— Bulletin dei lois. In France, the official sheet which publishes the laws and decrees; this publication constitutes the promulgation of the law or decree.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ignorantia legis neminem excusat]**

The Bulletin des lois exists to give promulgation — the act that makes the maxim Ignorantia legis neminem excusat ('ignorance of the law excuses no one') operable: only a published law can fairly be one of which ignorance is no excuse.

Why: Genuine: the entry states outright that this publication 'constitutes the promulgation of the law or decree,' and the maxim is the legal reason promulgation matters; one illuminates the other.

## BULLION.

Gold and silver Intended to be coined. The term is usually applied to a quantity of these metals ready for the mint, but as yet lying in bars, plates, lumps, or other masses; but it may also include orna- ments or dishes of gold and silver, or foreign coins not current as money, when intended to be descriptive of its adaptability to be coined, and not of other purposes to which it may be put. Hope Min. Co. v. Kennon, 3 Mont. 44 ; Thalhelm v. State, 38 Fla. 169, 20 South. 938; Counsel v. Min. Co., 5 Daly (N. Y.) 77.

— Bullion fund. A fund of public money maintained in connection with the mints, for the purpose of purchasing precious metals for coinage.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5 — Congress's power 'to coin Money, regulate the Value thereof']**

Bullion is metal 'intended to be coined,' and the federal power to coin — and to purchase the metal for it, as the entry's 'bullion fund' describes — rests in the Coinage Clause.

Why: Genuine: the entry's definition and bullion-fund paragraph are about metal destined for the mint; the clause is the real constitutional source of that public function.

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## BUM-BAILIFF.

A person employed to dun one for a debt; a bailiff employed to ar- rest a debtor. Probably a vulgar corruption of “bound-bailiff,” («. v.)

5e apparatus — Carried into the 5th edition (1979).

## BUNDA.

Tn old English law. A bound, boundary, border, or limit, ( terminus , limes.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance.

Why: Bunda is a bound/boundary; the verse is the biblical landmark law protecting boundaries from removal, directly illuminating the legal concept of a fixed bound.

## BUOY.

In maritime law. A piece of wood or cork, or a barrel, raft, or other thing, made secure and floating upon a stream or bay, intended as a guide and warning to mariners, by marking a si>ot where the water is shallow, or where there is a reef or other danger to navigation, or to mark the course of a devious channel.

5e apparatus — Not carried into the 5th edition (1979).

## BURDEN OF PROOF.

fLat. onus pro - bandi.) In the law of evidence. The neces- sity or duty of affirmatively proving a fact or facts In dispute on an issue raised between the parties in a cause Willett v. Rich, 142 Mass. 356, 7 N. E. 770, 56 Am. Rep. 684; Wilder v. Cowles, 100 Mass. 490; People v. McCann, 16 N. X. 58, 69 Am. Dec. 642.

The term “burden of proof” is not to be confused with "prima facie case.” When the party upon whom the burden of proof rests has made out a prima facie case, this will, in general, suffice to shift the burden. In other words, the former expression de- notes the necessity of establishing the latter. Kendall v. Brownson, 47 N. H. 200; Carver v. Carver, 97 Ind. 511; Heinemann v. Heard, 62 N. X. 455 ; Feurt v. Ambrose, 34 Mo. App. 366 ; Gibbs v. Bank, 123 Iowa, 736, 99 N. W. 703.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actore non probante, reus absolvitur — 'the plaintiff not proving, the defendant is absolved']**

The doctrine the entry expounds is the classical maxim that the affirmative carries the proof: the party asserting a fact must prove it, not the party denying it.

Why: Genuine: the maxim is the very principle the entry's long exposition (burden vs. prima facie case, shifting burden) restates; it illuminates the 'why' behind the mechanics.

**[In re Winship, 397 U.S. 358 (1970)]**

At the criminal end of the entry's spectrum, due process demands the heaviest form of this burden:

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proof beyond a reasonable doubt in criminal adjudications.

Why: Genuine: Winship is the landmark case constitutionalizing the criminal burden of proof; the entry's topic is the burden itself, and Winship states its highest measure. Confident this case and citation are real.

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry defines the duty of affirmatively proving disputed facts; the verse lays down the ancient rule for when a matter is established by evidence — the root concept of the evidentiary burden.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Ei incumbit probatio qui dicit, non qui negat — "the burden of proof lies on the one who asserts, not on the one who denies" (Dig. 22.3.2)]**

(paraphrase) The Roman-law maxim runs: the burden of proving lies on the one who asserts, not on the one who denies. (paraphrase)

Why: The entry gives the term's Latin name (onus probandi) but not this asserter/denier maxim, so the maxim illuminates rather than restates the definition. Classical maxim, public domain; translation is the worker's own.

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Atticus Finch's closing argument turns the trial on the prosecution's burden: the state has not carried it, so the jury must acquit on reasonable doubt. (paraphrase)

Why: The novel's courtroom climax is the most famous fictional staging of the burden of proof in action — the defense insisting the affirmative duty rests on the accuser. Paraphrase only; no verbatim quote used.

## BUREAU.

An office for the transaction of business. A name given to the several departments of the executive or administra- tive branch of government, or to their larger subdivisions. In re Strawbridge, 39 Ala. 375.

5e apparatus — Not carried into the 5th edition (1979).

## BUREAUCRACY.

A system in which the business of government is carried on in departments, each under the control of a chief, in contradistinction from a system in which the officers of government have a co- ordinate authority.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Franz Kafka, The Trial, 1925]**

(paraphrase) Josef K. is arrested one morning and never learns the charge, ground through departments and chiefs he can never face — government as pure procedure. (paraphrase)

Why: The entry defines bureaucracy as government carried on in departments under chiefs. Kafka's novel is the canonical fictional staging of exactly that machinery. Paraphrase only.

## BURG, BURGH.

A term anciently ap- plied to a castle or fortifled place ; a borough, (<?. v.) S pel man.

5e apparatus — Not carried into the 5th edition (1979).

## BURGAGE.

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A name anciently given to a dwelling-house in a borough town. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## BURGAGE-HOLDING.

A tenure by which lands in royal boroughs in Scotland were held of the sovereign. The service was watching and warding, and was done by the burgesses within the territory of the bor- ough, whether expressed in the charter or not.

5e apparatus — Not carried into the 5th edition (1979).

## BURGAGE-TENURE.

In English law. One of the three species of free socage hold- ings; a tenure whereby houses and lands which were formerly the site of houses, in an ancient borough, are held of some lord by a certain rent. There are a great many cus- toms affecting these tenures, the most remarkable of which is the custom of Borough English. See Litt. § 162 ; 2 Bl. Comm. 82.

5e apparatus — Carried into the 5th edition (1979).

## BURGATOR.

One who breaks into houses or inclosed places, as distinguished from one who committed robbery in the open country. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## BURGBOTE.

In old English law. A term applied to a contribution towards the repair of castles or walls of defense, or of a borough.

5e apparatus — Not carried into the 5th edition (1979).

## BURGEN8E8.

In old English law. In- habitants of a burg us or borough; burgesses. Fleta, lib. 5, c. 6, f 10.

5e apparatus — Not carried into the 5th edition (1979).

## BURGERISTH.

A word used in Domes- day, signifying a breach o i the peace in a town. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## BURGESS.

In English law. An in- habitant or freeman of a borough or town; a person duly and legally admitted a member of a municipal corporation. Spelman; 3 Steph. Comm. 188, 189.

A magistrate of a borough. Blount.

An elector or voter ; a person legally qual- ified to vote at elections. The word in this sense is particularly defined by the statute 5 & 6 Wm. IV. c. 76, 8§ 9, 13. 3 Steph. Comm. 192.

A representative of a borough or town, in parliament Co. Litt 109a; 1 Bl. Comm. 174.

In American law. The chief executive officer of a borough, bearing the same rela- tion to its government and affairs that the mayor does to those of a city. So used in Pennsylvania.

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5e apparatus — Not carried into the 5th edition (1979).

## BURGESS ROLL.

A roll, required by the St. £ & 6 Wm. IV. c. 76, to be kept in corporate towns or boroughs, of the names of burgesses entitled to certain new rights •conferred by that act

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BURGH-BRECHE.

A fine imposed on the community of a town, for a breach of the peace, etc.

5e apparatus — Not carried into the 5th edition (1979).

## BURGH ENGLISH.

See Borough Eng- lish.

5e apparatus — Not carried into the 5th edition (1979).

## BURGH ENGLOYS.

Borough English, (9- «•)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BURGHMAILS.

Yearly payments to the crown of Scotland, introduced by Malcolm III., and resembling the English fee-farm rents.

5e apparatus — Not carried into the 5th edition (1979).

## BURGHMOTE.

In Saxon law. A court of Justice held semi-annually by the bishop or lord in a burg, which the thanes were bound to attend without summons.

5e apparatus — Not carried into the 5th edition (1979).

## BURGLAR.

One who commits burglary. One who breaks into a dwelling-house in the

night-time with intent to commit a felony. Wilson v. State, 34 Ohio St 200; O’Connor v. Press Pub. Co., 34 Mise. Rep. 564, 70 N. Y. Supp. 367.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: The entry defines the night house-breaker with felonious intent; the verse is the biblical law on the thief caught 'breaking up' — the precise act, genuinely illuminating the offense's gravity.

## BURGLARIOUSLY.

In pleading. A technical word which must be introduced into an indictment for burglary at

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common law. Lewis v. State, 16 Conn. 34; Reed v. State, 14 Tex. App. 665.

5e apparatus — Not carried into the 5th edition (1979).

## BURGLARITER.

L. Lat (Burglarious- ly.) In old criminal pleading. A necessary word in indictments for burglary.

5e apparatus — Not carried into the 5th edition (1979).

## BURGLARY.

In criminal law. The breaking and entering the house of another in the night-time, with Intent to commit a felony therein, whether the felony be actual- ly committed or not. Anderson v. State, 43 Ala. 666, 17 Am. Rep. 36; Benson v. Mc- Mahon, 127 U. S. 457, 8 Sup. Ct 1240, 32 L. Ed. 234; Hunter v. State, 29 Ind. 80; State y. Petit, 32 Wash. 129, 72 Pac. 1021; State v. Langford. 12 N. C. 253; State v. McCall, 4 Ala. 644, 39 Am. Dec. 314; State v. Wilson, 1 N. J. Law, 439, 1 Am. Dec. 216; Com. y. Newell, 7 Mass. 245.

The common-law definition has been much modified by statute in several of the states. For example: "Every person who enters any house, room, apartment, tenement, shop, warehouse, store, mill, barn, stable, outhouse, or other building, tent, vessel, or railroad car, with intent to commit grand or petit larceny, or any felony, is guilty of burglary.” Pen. Code Cal. { 459.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 24:43, KJV]**

But know this, that if the goodman of the house had known in what watch the thief would come, he would have watched, and would not have suffered his house to be broken up.

Why: The entry defines breaking and entering the house by night; the verse depicts exactly that act — the house broken up by the night thief — illuminating the core wrong of the offense.

**[Humanity] — Humanity / Fiction & Film**

**[Alfred Hitchcock, To Catch a Thief, 1955]**

(paraphrase) A reformed jewel thief is suspected of a new nighttime burglary spree along the Riviera and must catch the real cat burglar to clear himself. (paraphrase)

Why: The entry defines burglary as breaking and entering a house in the night-time with intent to commit a felony. The film's premise is exactly that offense. Paraphrase of premise only.

## BURGOMASTER.

The title given in Germany to the chief executive officer of a borough, town, or city ; corresponding to our “mayor.”

5e apparatus — Not carried into the 5th edition (1979).

## BURGUNDIAN XAW.

See Lex Bub-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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# O

## OUNDIONCM.

BURGwHAR. A burgess, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

# B

## BURIAL.

Sepulture ; the act of interring dead human bodies. See Lay v. State, 12 Ind. App. 362, 39 N. E. 768; In re Reformed, etc., Church, 7 How. Prac. (N. Y.) 476 ; Ceme- tery Ass’n y. Assessors, 37 La. Ann. 35.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 23:4, KJV]**

I am a stranger and a sojourner with you: give me a possession of a buryingplace with you, that I may bury my dead out of my sight.

Why: The entry treats burial as a matter of interment rights; the verse is the first legal transaction for burial land in scripture — a purchase of possession of a buryingplace.

**[Humanity] — Humanity / Fiction & Film**

**[Sophocles, Antigone, c. 441 BCE]**

(paraphrase) Antigone defies Creon's edict and buries her brother, setting the duty of sepulture against the law of the state — and accepting death for it. (paraphrase)

Why: The entry defines burial as the interring of dead human bodies. The play's entire conflict is burial-duty versus state law — the classical work on burial as a legal/moral problem. Paraphrase only.

## BURKIN G-BURKISM.

Murder committed with the object of selling the cadaver for purposes of dissection, particularly and originally, by suffocating or strangling the victim.

So named from William Burke, a notorious practitioner of this crime, who was hanged at Edinburgh in 1829. It is said that the first instance of his name being thuR used as a syno- nym for the form of death he find inflicted on others occurred when he himself was led to the gibbet, the crowd around the scaffold shout- ing “Bnrke him!”

5e apparatus — Not carried into the 5th edition (1979).

## BURLAWS.

In Scotch law. Laws made by neighbors elected by common con- sent in the burlaw courts. Skene.

—Burlaw courts. Courts consisting of neigh- bors selected by common consent to act as judges in determining disputes between neighbor and neighbor.

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5e apparatus — Not carried into the 5th edition (1979).

## BURN.

To consume with fire. The verb “to burn,” in an indictment for arson, is to be taken In its common meaning of “to con- sume with fire.” Hester v. State, 17 Ga. 130.

5e apparatus — Not carried into the 5th edition (1979).

## BURNING FLUID.

As used in policies of insurance, this term does not mean any fluid which will bum, but it means a recog- nized article of commerce, called by that name, and which is a different article from naphtha or kerosene. Putnam v. Insurance Co. (C. C.) 4 Fed. 764 ; Wheeler v. Insurance Co., 6 Mo. App. 235; Mark v. Insurance Co., 24 Him (N. Y.) 569.

5e apparatus — Not carried into the 5th edition (1979).

## BURNING IN THE HAND.

In old Eng- lish criminal law, laymen, upon being ac- corded the benefit of clergy, were burned with a hot Iron in the brawn of the left thumb, In order that, being thus marked, they could not again claim their clergy. 4 Bl. Comm. 367.

5e apparatus — Carried into the 5th edition (1979).

## BURROCHTUM.

A burroch, dam, or small wear over a river, where traps are laid for the taking of fish. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## BURRO WMEALIS.

In Scotch law. A term used to designate the rents paid Into the king’s private treasury by the burgesses or inhabitants of a borough.

5e apparatus — Not carried into the 5th edition (1979).

## BURSA.

Lat A purse.

5e apparatus — Not carried into the 5th edition (1979).

## BURSAR.

A treasurer of a college.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 13:29, KJV]**

For some of them thought, because Judas had the bag, that Jesus had said unto him, Buy those things that we have need of against the feast; or, that he should give something to the poor.

Why: A bursar is the keeper of a college's funds; the verse shows the office of the purse-keeper in the apostolic company — one man holding the common bag — genuinely illuminating the treasurer's office.

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## BURSARIA.

The exchequer of collegiate or conventual bodies ; or the place of receiv- ing, paying, and accounting by the bursars. Also stipendiary scholars, who live upon the burse, fund, or joint-stock of the college.

5e apparatus — Not carried into the 5th edition (1979).

## BURYING ALIVE.

In English law. The ancient punishment of sodomites, and those who contracted with Jews. Fleta, lib. 1, c. 27, § 3.

5e apparatus — Not carried into the 5th edition (1979).

## BURYING-GROUND.

A place set apart for the interment of the dead; a cemetery. Appeal Tax Court v. Academy, 50 Md. 353.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 23:20, KJV]**

And the field, and the cave that is therein, were made sure unto Abraham for a possession of a buryingplace by the sons of Heth.

Why: A burying-ground is land conveyed and set apart for interment; the verse records the formal conveyance of such a ground — 'made sure... for a possession of a buryingplace' — the legal instrument behind the entry.

## BUSCARL.

In Saxon and old English law. Seamen or marines. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## BUSHEL.

A dry measure, containing four pecks, eight gallons, or thirty-two quarts. But the dimensions of a bushel, and the weight of a bushel of grain, etc., vary in the different states in consequence of statutory enactments. Richardson v. Spafford, 13 Vt.

245; Milk v. Christie, 1 Hill (N, Y.) 106; Hock In v. Cooke, 4 Term, 316.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5 — Congress's power 'to fix the Standard of Weights and Measures']**

The entry notes bushel dimensions 'vary in the different states in consequence of statutory enactments' — the very subject of Congress's constitutional power to fix a national standard.

Why: Genuine: the clause names exactly the subject (weights and measures) whose state-by-state statutory variation the entry reports; it illuminates the federal frame around the entry's state statutes.

**[Scripture] — Scripture**

**[Leviticus 19:36, KJV]**

Just balances, just weights, a just ephah, and a just hin, shall ye have.

Why: The entry defines the bushel as a legal dry measure whose standard varies by statute; the verse commands

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fixed, just standards of weights and measures — the divine law behind legal metrology.

## BUSINESS.

This word embraces every- thing about which a person can be employed. People v. Com’rs of Tuxes, 23 N. Y. 242, 244.

That which occupies the time, attention, and labor of men for the purpose of a liveli- hood or profit The doing of a single act pertaining to a particular business will not be considered engaging In or carrying on the business ; yet a series of such acts would be so considered. Goddard v. Chaffee, 2 Allen (Mass.) 305, 79 Am. Dec. 796 ; Sterne v. State, 20 Ala. 46.

Labor, business, and work are not synonyms. Labor may be business, but it is not necessarily so; and business is not always labor. Making an agreement for the sale of a chattel is not within a prohibition of labor upon Sunday, though it is (if by a merchant in his calling) within a prohibition upon business. Bloom v. Richards, 2 Ohio St. 387.

5e apparatus — Carried into the 5th edition (1979).

## BUSINESS HOURS.

Those hours of the day during which, in a given community, com- mercial, banking, professional, public, or oth- er kinds of business are ordinarily car- ried on.

This phrase is declared to mean not the time during which a principal requires an employee’s services, but the business hours of the commu- nity generally. Derosia v. Railroad Co., 18 Minn. 133, (Gil. 119.)

5e apparatus — Carried into the 5th edition (1979).

## BUSONES COMITATUS.

In old English law. The barons of a county*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## BUSSA.

A. term used In the old English law, to designate a large and clumsily con- structed ship.

5e apparatus — Not carried into the 5th edition (1979).

## BUTLERAGE.

A privilege formerly al- lowed to the king’s butler, to take a certain part of every cask of wine Imported by an' alien.

5e apparatus — Not carried into the 5th edition (1979).

## BUTLER’S ORDINANCE.

In English law. A law for the heir to punish waste in the life of the ancestor. "Though it be on record in the parliament book of Edward I., yet It never was a statute, nor ever so re- ceived; but only some constitution of, the king's council, or lords In parliament, which never obtained the strength or force of an act of parliament.” Hale, Hist. Eng. Law, p. 18.

5e apparatus — Carried into the 5th edition (1979).

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## BUTT.

A measure of liquid capacity, equal to one hundred and eight gallons ; also a measure of land.

5e apparatus — Carried into the 5th edition (1979).

## BUTTAXS.

The bounding lines of land at the end; abuttals, which see.

5e apparatus — Not carried into the 5th edition (1979).

## BUTTED AND BOUNDED.

A phrase sometimes used in conveyancing, to intro- duce the boundaries of lauds. See Butts and Bounds.

5e apparatus — Carried into the 5th edition (1979).

## BUTTS.

In old English law. Short pieces of land left unplowed at the ends of

fields, where the plow was turned about, (otherwise called "headlands,”) as sidelings were similar unplowed pieces on the sides. Burrill.

Also a place where bowmen meet to shoot at a mark. . .

5e apparatus — Carried into the 5th edition (1979).

## BUTTS AND BOUNDS.

A phrase used In conveyancing, to describe the end lines or circumscribing lines of a certain piece of land. The phrase “metes and bounds" has the same meaning.

5e apparatus — Carried into the 5th edition (1979).

## BUTTY.

A local term in the north of England, for the associate or deputy of an- other ; also of things used In common.

5e apparatus — Not carried into the 5th edition (1979).

## BUY.

To acquire the ownership of prop- erty by giving an accepted price or considera- tion therefor ; or by agreeing to do so ; to ac- quire by the payment of a price or value ; to purchase. Webster.

—Buy in. To purchase, at public sale, prop- erty which is one’s own or which one has caused or procured to be sold.— Buyer. One who buys: a purchaser, particularly of chattels. — Buying titles. The purchase of the rights or claims to real estate of a person who is not in possession of the land or is disseised. Void, and an offense, at common law. Whitaker v. Cone, 2 Johns. Cas. (N. Y.) 59; Brinley v. Whiting, 5 Pick. (Mass.) 356.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 23:9, KJV]**

That he may give me the cave of Machpelah, which he hath, which is in the end of his field; for as much money as it is worth he shall give it me for a possession of a buryingplace.

Why: The entry defines buying as acquiring ownership by giving an accepted price; the verse is the biblical archetype of the bargained land purchase — full money paid for a possession — genuinely illuminating the concept o…

## BY.

This word, when descriptively used in a grant, does not mean “In immediate con- tact with,” but “near” to, the object to which it relates; and "near” is a relative term, meaning, when used in laud patents, very unequal and different distances. Wells v. Mfg. Oo., 48 N. H. 491.

A contract to complete work by a certain time, means that it shall be done before that time. Rankin v. Woodworth, 3 Pen. & W. (Pa.) 48.

By an acquittance for the last pay- ment all other arrearages are discharged.

Noy, 40.

5e apparatus — Carried into the 5th edition (1979).

## BY-BIDDING.

See Bid.

5e apparatus — Carried into the 5th edition (1979).

## BY BILL, BY BILL WITHOUT WRIT.

In practice. Terms anciently used to des- ignate actions commenced by original bill, as distinguished from those commenced by original writ, and applied in modern practice to suits commenced by capias ad responden- dum. 1 Arch. Pr. pp. 2, 337 ; Harkness v. Harkness, 5 Hill (N. Y.) 213.

5e apparatus — Not carried into the 5th edition (1979).

## BY ESTIMATION.

In conveyancing. A term used to Indicate that the quantity of land as stated Is estimated only, not exactly measured ; has the same meaning and effect as the phrase “more or less.” Tarbell v. Bowman, 103 Mass. 341 ; Mendenhall v. Steckel, 47 Md. 453, 28 Am. Rep. 481 ; Hays v. Hays, 126 Ind. 92, 25 N. E. COO, 11 L. R. A. 376.

5e apparatus — Carried into the 5th edition (1979).

## BY GOD AND MY COUNTRY.

In old

English criminal practice. The established

formula of reply by a prisoner, when ar- raigned at the bar, to the question, “Culprit, how wilt thou be tried?’’

5e apparatus — Carried into the 5th edition (1979).

## BY-LAWS.

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Regulations, ordinances, or rules enacted by a private corporation for its own government

A by-law is a rule or law of a corporation, for its government, and is a legislative act and the solemnities and sanction required by the charter must be observed, A resolution is not necessarily a by-law though a by-law may be in the form of a resolution. Peck v. Elliott, 79 Fed. 10, 24 O. C. A. 425, 38 L. R. A. 616; Mining Oo. v. King, 94 Wis. 439, 69 N. W. 181, 36 DR. A. 51 ; Bagley v. Oil Co., 201 Pa. 78, 50 Ad. 760, 56 L. R. A. 184 ; Dairy Ass'n v. Webb, 40 App. Div. 48, 57 N. Y. Supp. 572.

"That the reasonableness of -a by-law of a corporation is a question of law. and not of fact has always been the established rule; but in the case of State v. Overton, 24 N. J. Law, 435, 61 Am. Dec. 671, a distinction was taken in this respect between a by-law and a regula- tion, the validity of the former being a judi- cial question, while the latter was regarded as a matter in fait. But although, in one of the opinions read in the case referred to, the view was clearly expressed that the reasonableness of a corporate regulation was properly for the consideration of the jury, and not of the yet it was nevertheless stated that the was not involved in the controversy then decided. There is no doubt 'that the rule thus intimated is in opposition to recent American authorities. Nor nave I been able to find in the English books any such distinction as that above stated between a by-law and a regula- tion of a corporation." Compton v. Van Vol- kenburgh, 34 N. J. Law. 135.

court, point to be

or town. But of late the tendency is to em- ploy the word "ordinance" exclusively for this class of enactments, reserving "by-law" for the rules adopted by private corporations.

5e apparatus — Carried into the 5th edition (1979).

## BY LAW MEN.

In English law. The chief men of a town, representing the In- habitants.

5e apparatus — Carried into the 5th edition (1979).

## BY-ROAD.

The statute law of New Jer- sey recognizes three different kinds of roads: A public road, a private road, and a by- road. A by-road is a road used by the in- habitants, and recognized by statute, but not laid out. Such roads are often called "drift- ways." They are roads of necessity in new- ly-settled countries. Van Blareom v. Frike, 29 N. J. Law, 516. See, also, Stevens v. Allen, 29 N. J. Law, 68.

An obscure or neighborhood road in its earlier existence, not used to any great ex- tent by the public, yet so far a public road that the public have of right free access to it at all times. Wood v. Hurd, 34 N. J. Law, 89.

5e apparatus — Carried into the 5th edition (1979).

## BY THE BY.

Incidentally ; without new process. A term used in former English practice to denote the method of filing a dec- laration against a defendant who was al- ready in the custody of the

court at the suit of a different plaintiff or of the same plaintiff in another cause.

The word has also been used to designate the local laws or municipal statutes of a city

BYE-BIL-WtJFFA. In Hindu law. A deed of mortgage or conditional sale.

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c

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# C

## C.

The initial letter of the word “Codex” used by some writers in citing the Code of Justinian. Tayl. Civil Law, 24.

It was also the letter inscribed on the bal- lets by which, among the Rornaus, jurors voted to condemn an accused party. It was the iuitial letter of condcmno, I condemn. Tayl. Civil Law, 192.

5e apparatus — Not carried into the 5th edition (1979).

## C.

as the third letter of the alphabet, is used as a numeral, In like manner with that use of A and B, (g. v.)

The letter is also used to designate the third of a series of propositions, sections, etc., as A, B, and the others are used as numerals.

It is used as an abbreviation of many words of which it is the initlul letter ; such as cases, civil, circuit, code, common, court, criminal, chancellor, crown.

C.— CT.— CTS. These abbreviations stand for "cent” or “cents,” and any of them, placed at the top or head of a column, of fig- ures. sufficiently indicates the denomination of the figures below. Jnckson v. Cummings, 15 111. 453 ; Hunt v. Smith, 9 Kan. 137 ; Llnck v. Litchfield, 141 111. 469, 31 N. E. 123.

5e apparatus — Not carried into the 5th edition (1979).

## C. A. V.

An abbreviation for curia ad- visari vult, the court will be advised, will consider, will deliberate.

5e apparatus — Not carried into the 5th edition (1979).

## C. B.

In reports and legal documents, an abbreviation for common bench. Also an abbreviation for chief baron.

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5e apparatus — Not carried into the 5th edition (1979).

# O

### O. C.

Various terms or phrases maybe denoted by this abbreviation ; such as circuit court, (or city or county court ;) criminal cases, (or crown or civil or chancery cases ;) civil code; chief commissioner; and the re- turn of cepi corpus.

5e apparatus — Not carried into the 5th edition (1979).

# C

### C. C. P.

An abbreviation for Code of Civil Procedure; also for court of common pleas.' • ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### C. J.

An abbreviation for chief justice; also for circuit judge.

5e apparatus — Not carried into the 5th edition (1979).

### C. L.

An abbreviation for civil law.

5e apparatus — Carried into the 5th edition (1979).

### C. L. P.

Common law procedure, in ref- erence to the English acts so entitled.

5e apparatus — Not carried into the 5th edition (1979).

### C. O. D.

“Collect ou delivery.” These letters are not cabalistic, but have a deter- minate meaning. They imiiort the carrier's liability to return to the consignor either the goods or the charges. U. S. Exp. Co. v. Keef- er. 59 Iiul. 267 ; Fleming v. Com., 130 Pa. 138. 18 Atl. 622; Express Co. v. Wolf, 79 111. 434.

5e apparatus — Not carried into the 5th edition (1979).

# O

### O. P.

An abbreviation for common pleas.

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5e apparatus — Not carried into the 5th edition (1979).

# C

### C. R.

An abbreviation for curia regis; also for chancery reports.

5e apparatus — Not carried into the 5th edition (1979).

# O

### O. T. A.

An abbreviation for cum testa- mento annexe. In describing a species of ad- ministration.

5e apparatus — Not carried into the 5th edition (1979).

# C

### CABAL.

A small association for the pur- pose of Intrigue; an intrigue. This name was given to that ministry in the reign of Charles II. formed by Clifford, Ashley, Buck- ingham, Arlington, and Lauderdale, who con- certed a scheme for the restoration of pop- ery. The initials of these five names form the word “cabal ;” hence the appellation. Hume, Hist. Eng. ix. 69.

5e apparatus — Not carried into the 5th edition (1979).

### CABAXIST.

In French commercial law. A factor or broker.

5e apparatus — Not carried into the 5th edition (1979).

### CAB ALL ARIA.

Pertaining to a horse. It was a feudal tenure of lands, the tenant furnishing a horseman suitably equipped in time of- war, or when the lord had occasion for his service.

5e apparatus — Not carried into the 5th edition (1979).

### CABALLERIA.

In Spanish law. An allotment of land acquired by conquest, to a horse soldier. It was a strip one hundred feet wide by two hundred feet deep. The term has been sometimes used in those parts of the United States which were derived from Spain. See 12 Pet 444, note.

5e apparatus — Not carried into the 5th edition (1979).

### CABALLERO.

In Spanish law. A

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knight So called on account of its being more honorable to go on horseback (A caballo) than on any other beast

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CABINET.

The advisory board or coun- cil of a king or other chief executive. In the government of the United States the cabinet is composed of the secretary of state, the set- cretary of the treasury, the secretary of the interior, the secretary of war, the secretary of the navy, the secretary of agriculture, the secretary of commerce and labor, the attor- ney general, and the postmaster general.

The select or secret council of a prince or executive government; so called from the apartment in which it was originally held. Webster.

5e apparatus — Carried into the 5th edition (1979).

## CABINET COUNCIL.

In English law. A private and confidential assembly of the most considerable ministers of state, to con- cert measures for the administration of pub- lic affairs; first established by Charles I. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CABLE.

A large and strong rope or chain, such as is attached to a vessel's anchors, or the traction-rope of a street railway operat- ed by the cable system, (Hooper v. Railway Co., 85 Md. 509, 37 Atl. 359, 38 L. R. A. 500,)

or used in submarine telegraphy, (see 25 Stat. 41 [U. S. Comp. St. 1901, p. 3586].)

5e apparatus — Not carried into the 5th edition (1979).

## CABLISH.

Brush-wood, or more prop- erly windfall-wood.

CACHEPOLUS, or CACHEREIXAS.

An inferior bailiff, or catchpoll. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## CACHET, LETTRES DE.

Letters is- sued aud signed by the kings of France, and countersigned by a secretary of state, author- izing the imprisonment of a person. Abol- lished during the revolution of 1789.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Magna Carta, c. 39 (1215) — 'except by the lawful judgment of his equals or by the law of the land']**

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The lettres de cachet are the archetype of imprisonment without judgment — the very abuse the 'law of the land' principle condemns: no one seized or imprisoned except by lawful judgment or the law of the land.

Why: Genuine: the entry defines these letters as authorizing imprisonment at the king's pleasure (abolished 1789); Magna Carta c. 39 states the classical principle such instruments violate. The quote is the famous verbatim...

**[Humanity] — Humanity / Fiction & Film**

**[Alexandre Dumas, Le Vicomte de Bragelonne (The Man in the Iron Mask), 1847-1850]**

(paraphrase) A man sits masked in a fortress prison for decades on nothing but the king's sealed order, his identity itself the secret the warrant protects. (paraphrase)

Why: The entry defines lettres de cachet as royal warrants authorizing imprisonment, abolished 1789. Dumas's tale dramatizes arbitrary imprisonment by royal order without trial. Year given as the honest serial-publication...

## CAGICAZGOS.

In Spanish- American law. Property entailed on the caciques, or heads of Indian villages, • and their descendants. Schm. Civil Law, 309.

5e apparatus — Not carried into the 5th edition (1979).

## CADASTRE.

In Spanish law. An official statement of the quantity and value of real property in any district, made for the pur- pose of justly apportioning the taxes payable on such property. 12 Pet. 428, note.

5e apparatus — Not carried into the 5th edition (1979).

## CADASTTT.

In French law. An official statement of the quantity and value of realty made for purposes of taxation ; same as ca- dastre, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## CADAVER.

A dead human body ; a corpse. Cadaver nullius in bonis, no one can have a right of property in a corpse. 3 Co. Inst. 110, 2 Bl. Comm. 429 ; Griffith v. Rail- road Co., 23 S. C. 32, 55 Am. Rep. 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Mary Shelley, Frankenstein, 1818]**

(paraphrase) Victor Frankenstein assembles a living creature from corpses gathered in charnel houses — the dead body as raw material for a legal and moral catastrophe. (paraphrase)

Why: The entry defines cadaver as a dead human body and notes no property can be held in a corpse. The novel is the canonical fiction of the corpse as a legal/moral problem. Paraphrase only.

## CAPERE.

Lat. To end; cease; fail. As in the phrases cadit actio, (or breve,) the action (or writ) falls; cadit assisa, the as- sise abates ; cadit qwestio, the discussion ends, there is no room for further argument.

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To be changed; to be turned into. Cadit assisa in juratum, the assise is changed into a Jury.

5e apparatus — Not carried into the 5th edition (1979).

### CADET.

In the United States laws,

students in the military academy at West Point are styled "cadets;” students in the naval academy at Annapolis, "cadet midship- men." Rev. St. SS 1309, 1512 (U. S. Comp. St 1901, pp. 927, 1042).

In England. The younger son of a gen- tleman ; particularly applied to a volunteer in the army, waiting for some post. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

### CADI.

The name of a Turkish civil mag- istrate.

5e apparatus — Not carried into the 5th edition (1979).

### CADIT.

Lat. It falls, abates, falls, ends, ceases. See Cadebe.

5e apparatus — Not carried into the 5th edition (1979).

## G

### GADUGA.

In the civil law. Property of an inheritable quality; property such as de- scends to an heir. Also the lapse of a testa- mentary disposition or legacy. Also an es- cheat; escheated property.

Bl.Law Dict.(2b Eh>.)— 11

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The entry (headword OCR'd as GADUGA = CADUCA) defines property of inheritable quality descending to an heir; the verse fixes the heir's legal right — the firstborn's double portion — genuinely illuminating heirship by…

## C

### CADUCART.

Relating to or of the na- ture of escheat, forfeiture, or confiscation. 2 Bl. Comm. 245.

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5e apparatus — Not carried into the 5th edition (1979).

## CJEDUA.

In the civil and old common law. Kept for cutting; Intended or used to be cut. A term applied to wood.

5e apparatus — Not carried into the 5th edition (1979).

## C1ESAR.

In the Roman law. A cogno- men in the Gens Julia, which was assumed by the successors of Julius. Tayl. Civil Law, 31.

CiESAREAN OPERATION. A surgical operation whereby the foetus, which can nei- ther make its way into the world by the or- dinary and natural passage, nor be extracted by the attempts of art, whether the mother and foetus be yet alive, or whether either of them be dead, is, by a cautious and well- timed operation, taken from the mother, with a view to save the lives of both, or either of them. This consists in making an incision into the abdomen and uterus of the mother and withdrawing the foetus thereby. If this operation be performed after the mother's death, the husband cannot be tenant by the curtesy ; since his right begins from the birth of the issue, and is consummated by the death of the wife ; but if mother and child are sav- ed, then the husband would be entitled after her death. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The entry (headword OCR'd as C1ESAR = CÆSAR) defines the Roman imperial title; the verse is Jesus' own ruling on what is owed to that title's bearer — the verse genuinely illuminates Caesar's legal claim on his subjects.

## CJETERUS.

Lat. Other; another; the rest.

— Cseterls paribus. Other things being equal. — Cseteris tacentibus. The others being si- lent : the other judges expressing no opinion.

Comb. 186.— Cseterorum. When a limited ad- ministration has been granted, and all the prop- erty cannot be administered under it. adminis- tration car terorum (as to the residue) may be granted.

5e apparatus — Not carried into the 5th edition (1979).

## CAHIER.

In old French law. -A list of grievances prepared for deputies in the states- general. A petition for the redress of griev- ances enumerated.

5e apparatus — Not carried into the 5th edition (1979).

## CAIRNS’ ACT.

An English statute for enabling the court of chancery to award dam- ages. 21 & 22 Viet. c.

27.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Ubi jus, ibi remedium — 'where there is a right, there is a remedy']**

Cairns' Act (21 & 22 Vict. c. 27) gave Chancery power to award damages — the legislative working of the maxim that where a right exists, a remedy must follow.

Why: Genuine: the Act's whole point was to supply a damages remedy where Chancery previously had none; the maxim names the principle the statute operationalizes. The maxim is a standard, confidently real equitable maxim.

## CALABOOSE.

A term used vulgarly, and occasionally in judicial proceedings and law reports, to designate a jail or prison, partic- uarly a town or city jail or lock-up. Suppos- ed to be a corruption of the Spanish calabozo, a dungeon. See Gilliam v. Wells, 64 Ga. 194.

5e apparatus — Not carried into the 5th edition (1979).

## CALCETTJM, CALCEA.

A causeway, or common hard-way, maintained and repair- ed with stones and rubbish.

5e apparatus — Not carried into the 5th edition (1979).

## CAXE.

In old French law. A punish- ment of sailors, resembling the modem “keel- hauling.”

5e apparatus — Not carried into the 5th edition (1979).

## CALEFAGIUM.

In old law. A right to take fuel yearly. Cowell.

CALENDAR. 1. Hie established order of the division of time Into years, months, weeks, and days ; or a systematized enumera- tion of such arrangement ; an almanac. Rives v. Guthrie, 46 N. C. 86.

—Calendar days. So many days reckoned ac- cording to the course of the calendar. For example, a note dated January 1 at and payable “thirty calendar days after date,” without grace, is payable on the 31st day of January, though if expressed to be payable simply “thir- ty days after date,” It would be payable Feb- ruary 1st.— Calendar month. One of the months of the year as enumerated in the cal- endar,—January, February, March, etc., — with- out reference to the number of days it may con- tain; as distinguished from a lunar month, of twenty-eight days, or a month for business purposes, which may contain thirty, at what- ever part of the year it occurs. Daley v. An- derson. 7 Wyo. 1, 48 Pac. 840, 75 Am. St Rep. 870; Migotti v. Colvil, 4 C. P. Div. 233; In re Parker’s Estate, 14 Wkly. Notes Cas. (Pa.) 566.— Calendar year. The calendar year is composed of twelve months, varying in length according to the common or Gregorian calendar. In re Parker’s Estate, 14 Wkly. Notes Cas. (Pa.) 566.

2. A list or systematic enumeration of causes or motions arranged for trial or hear- ing In a court.

—Calendar of causes. In practice. A list of the causes instituted in the particular court, and now ready for trial, drawn up by the clerk shortly before the beginning of the term, exhibiting the titles of the suits, arranged in their order for trial, with the nature of each action, the date of issue, and the names of the counsel engaged ; designed for the information and convenience of the court and bar. It is sometimes called the “trial list,” or “docket.”— Calendar of prisoners. In English practice. A list kept by the sheriffs containing the names of all the prisoners in their custody, with the several judgments against each in the margin. Staundef. P. C. 182 ; 4 Bl. Comm. 403.— Spe- cial calendar. A calendar or list of causes, containing those set down specially for hearing, trial, or argument.

5e apparatus — Not carried into the 5th edition (1979).

## CALENDS.

Among the Romans the first day of every month, being spoken of by It- self, or the very day of the new moon, which usually happen together. And if pridie, the day before, be added to it, then It is the last day of the foregoing month, as pridie calend. Beptemb. is the last day of August. If any number be placed with it. It signifies that day In the former month which comes so much before the month named, as the tenth calends of October Is the 20th day of September ; for If one reckons backwards, beginning at Octo- ber, that 20th day of September makes the 10th day before October. In March, May, July, and October, the .calends begin at the sixteenth day, but in other months at the fourteenth; which calends must ever bear the name of the month following, and be numbered backwards from the first day of the said following months. Jacob. See Rives v. Guthrie, 46 N. C. 87.

5e apparatus — Not carried into the 5th edition (1979).

## CALENDS, GREEK.

A metaphorical ex- pression for a time never likely to arrive.

CALL, n. 1. In English law. The elec- tion of students to the degree of barrister at

law, hence the ceremony or epoch of election, and the number of persons elected.

2. In conveyancing. A visible natural object or landmark designated in a patent, en- try. grant, or other conveyance of lands, as a limit or boundary to the land described, with which the points of surveying must cor- respond. Also the courses and distances des- ignated. King v. Watkins (C. C.) 98 Fed. 922; Stockton v. Morris, 89 W. Va. 432, 19

S. E 531.

3. In corporation law. A demand made by the directors of a stock company upon the persons who have subscribed for shares, re- quiring a certain portion or installment of the amount subscribed to be paid in. The word, in this sense, in synonymous with "as- sessment,” (g. v.)

A call is an assessment on shares of stock, usually for unpaid installments of the sub- scription thereto. The word is said to be ca- pable of three meanings: (1) The resolution of the directors to levy the assessment; (2) its notification to the persons liable to pay; (3) the time when it becomes payable. Rail- way Co. v. Mitchell, 4 Exch. 543; Hatch v. Dana, MR U.

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S. 205, 25 L. Ed. 885 ; Railroad Co. v. Spreckles, 65 Cal. 193, 3 Pac. 601, 802 ; Stewart v. Pub. Co., 1 Wash. St 521, 20 Pac. 605.

4. In the language of the stoek ex- change, a “call” is an option to claim stock at a fixed price on a certain day. White v. Treat (C. C.) 100 Fed. 290; Lumber Co. v. Whitebreast Coal Co., 160 HI. 85, 43 N. E. 774, 31 L R. A. 529.

CALL, v. To summon or demand by name; to demand the presence and participation of a number of persons by calling aloud their names, either In a pre-arranged and syste- matic order or in a succession determined by chance.

—Call of the house. A call of the names of all the members of a legislative body, made by the clerk in pursuance of a resolution requiring the attendance of members. The names of ab- sentees being thus ascertained, they are im- peratively summoned (and, if necessary, com- pelled) to attend the session.— Calling a sum- mons. In Scotch practice. See this described in Bell. Diet.— Calling the docket. The pub- lic calling of the docket or list of causes at the commencement of a term of court, for the pur- pose of disposing of the same with regard to set- ting a time for trial or entering orders of con- tinuance, default, nonsuit, etc. Blanchard v. Ferdinand. 132 Mass. 391.— Calling the jury. Successively drawing out of a box into which they have been previously put the names of the jurors on the panels annexed to the mat print record, and calling them over in the order in which they are so drawn. The twelve persons whose names are first called, and who appear, are sworn as the jury, unless some just cause of challenge or excuse, with respect to any of them, shall be brought forward. — Calling the plaintiff. In practice. A formal method of causing a nonsuit to be entered. When a plain- tiff or his counsel, seeing that sufficient evidence has not been given to maintain the issue, with- draws. the crier is ordered to call or demand the plaintiff, and if neither he, nor any person

1G3

for him appear, he is nonsuited, the jurors are discharged without giving a verdict, the action is at an end, and the defendant recovers his costs. — Calling to the bar. In English practice. Conferring the dignity or degree of barrister at law upon a member of one of the inns of court. Holthonse.— Calling upon a prisoner. When a prisoner has been found guilty on an indict- ment, the clerk of the court addresses him and calls upon him to say why judgment should not be passed upon him.

5e apparatus — Not carried into the 5th edition (1979).

## CALPE8.

In Scotch law. A gift to the head of a clan, as an acknowledgment for protection and maintenance.

5e apparatus — Not carried into the 5th edition (1979).

## CALUMKIA.

In the civil law. Cal- amity, malice, or ill design; a false accusa- tion; a malicious prosecution. Lanning v. Christy, 30 Ohio St 115, 27 Am. Rep. 43L

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In the old common law. A claim, de- mand, challenge to jurors.

G ALUMNI* JUBAMENIUM. In the

old canon law. An oath similar to the calumnies jusjurandum, (q. v.)

C ALUMNI* JUSJURANDUM. The

oath of calumny. An oath Imposed upon the parties to a suit that they did not sue or defend with the Intention of calumniating, (calumniandi animo ,) i. e., with a malicious design, but from a firm belief that they had a good cause. Inst 4, 16.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: The entry (headword OCR'd as CALUMKIA = CALUMNIA) defines false accusation / malicious prosecution; the Ninth Commandment is the root prohibition of false witness, genuinely illuminating the wrong calumnia names. Deit...

## CAMBIUM.

In the civil law. Change or exchange. A term applied indifferently t° the exchange of land, money, or debts.

rea!e 01 manuals was the term gen- erally used to denote the technical common-law exchange of lands; cambium locale , mercan- tile or trajectitium, was used to designate the modern mercantile contract of exchange, where- by a man agrees, in consideration of a sum of money paid him in one place, to pay a like sum m another place. Po; h de Change, n. 12; Story, Bills, 1 2, et seq. ’

5e apparatus — Not carried into the 5th edition (1979).

## CAMERA.

In old English law. A cham- ber, room, or apartment; a Judge’s cham- ber; a treasury; a chest or coffer. Also, a stipend payable from vassal to lord ; an an- nuity.

“T-;--; T®8?*' In , English law. A chamber of the king ; a place of peculiar privi- leges especially in a commercial point of view. —Camera seaccarU. The old name of the exchequer chamber, ( q . o.)— Camera stellata. The star chamber, (gr. 17.)

5e apparatus — Not carried into the 5th edition (1979).

## CAMERALISTICS.

The science of fi- nance or public revenue, comprehending the means of raising and disposing of It.

5e apparatus — Not carried into the 5th edition (1979).

## CAMERARIU8.

A chamberlain ; a keep- er of the public money ; a treasurer.

Also a bailiff or receiver.

5e apparatus — Not carried into the 5th edition (1979).

## C AMINO.

In Spanish law. A road or highway. Las Partidas, pt. 3, tit 2, 1. 6.

5e apparatus — Not carried into the 5th edition (1979).

## CALUMNIATOR.

In the civil law. One who accused another of a crime without cause; one who brought a false accusation. Cod. 9, 46.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:18-19, KJV]**

And the judges shall make diligent inquisition: and, behold, if the witness be a false witness, and hath testified falsely against his brother; Then shall ye do unto him, as he had thought to have done unto his brother: so shalt thou put the evil away from among you.

Why: A calumniator is one who accuses another without cause; the verses lay down the legal consequence for the false witness — suffering what he meant for his brother — genuinely illuminating the law's treatment of the mal…

## CALUMNY.

Defamation ; slander ; false accusation of a crime or offense. See Cal-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 19:5, KJV]**

A false witness shall not be unpunished, and he that speaketh lies shall not escape.

Why: Calumny is defamation, slander, false accusation; the proverb states the certain consequence for the false witness and the liar — genuinely illuminating the concept. Flag off: wisdom literature, not deity speech.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c. 1603]**

(paraphrase) Iago poisons Othello with false insinuations of Desdemona's infidelity until the slander does the work of a dagger. (paraphrase)

Why: The entry defines calumny as defamation, slander, false accusation of a crime or offense. Iago is the canonical fictional calumniator. Paraphrase only.

# U

## UMNIA.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# C

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**CAMARA.**

In Spanish law. A treasury. Las Partidas, pt 6, tit. 3, 1, 2.

The exchequer. White, New Recop. b. 3, tit 8, c. L

CAMBELLANUS, or CAMBELLA-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# W

**WUS.**

A chamberlain. Spelnmn.

5e apparatus — Not carried into the 5th edition (1979).

# C

**CAMBIATOR.**

In old English law. An exchanger. Cambiatores monetw, exchan- gers of money; money-changers.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:12, KJV]**

And Jesus went into the temple of God, and cast out all them that sold and bought in the temple, and overthrew the tables of the moneychangers, and the seats of them that sold doves.

Why: The entry defines the cambiator as an exchanger of money, a money-changer; the verse shows the moneychangers' tables in the temple — the office and its public standing — genuinely illuminating who a money-changer was....

**CAMBIO.**

In Spanish law. Exchange. Schm. Civil Law, 148.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OAMBIPARTIA.**

Champerty ; from

campus, a field, and partus, divided. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

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# C

## C AMD IIP AR TIC EPS.

A champertor.

5e apparatus — Not carried into the 5th edition (1979).

## CAMBIST.

In mercantile law. A per- son skilled In exchanges; one who trades in promissory notes and bills of exchange.

5e apparatus — Carried into the 5th edition (1979).

## CAMP ANA.

In old European law. A bell. Spelman.

— Campon* bajula. A small handbell used in the ceremonies of the Romish church; and, among Protestants, by sextons, parish clerks, and criers. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAMPANARIUM, CAMPANILE.

A

belfry, bell tower, or steeple ; a place where bells are hung. Spelman; Townsh. Pl. 191. 213.

5e apparatus — Not carried into the 5th edition (1979).

## CAMPARTUM.

A part of a larger field or ground, which would otherwise be In gross or In common.

5e apparatus — Not carried into the 5th edition (1979).

## CAMPBELL’S (LORD) ACTS.

Eng- lish statutes, for amending the practice in prosecutions for libel, 9 A 10 Viet c. 93; also 6 A 7 VIct. c. 9C, providing for com- pensation to relatives In the case of a per- son having been killed through negligence; also 20 A 21 Viet. c. 83, in regard to the sale of obscene books, etc.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actio personalis moritur cum persona — 'a personal action dies with the person']**

The Fatal Accidents Act 1846 (9 & 10 Vict. c. 93, Lord Campbell's Act) created a statutory action for relatives of one killed by negligence — abrogating, for that case, the common-law rule that personal actions die with the person.

Why: Genuine: the maxim states the exact common-law bar the 1846 Act was enacted to lift; the entry lists the statute but does not name the doctrine it displaced, so the footnote illuminates rather than echoes.

## CAMPERS.

A share; a champertor’s share; a champertous division or sharing of land.

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5e apparatus — Not carried into the 5th edition (1979).

## C AMPERTU M.

A corn-field ; a field of grain. Blount ; Cowell ; Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## CAMPFIGHT.

In old English law. The fighting of two champions or combatants In the field ; the judicial combat, or duellum. 3 lust. 221.

5e apparatus — Carried into the 5th edition (1979).

## CAMPUS.

In old European law. An

assembly of the people; so called from be- ing anciently held In the open air, in some plain capable of containing a large number of persons.

In feudal and old English law. A field, or plain. The field, ground, or lists marked out for the combatants in the duellum, or

trial by battle.

— Campna Mail. The field of May. An an- niversary assembly of the Saxons, held on May-day, when they confederated for the de- fense of the kingdom against all its enemies. —Campna Martil. The field of March. See Champ dk Mass.

5e apparatus — Not carried into the 5th edition (1979).

## CANA.

A Spanish measure of length varying (in different localities) from about five to seven feet

sometimes be taken aa equivalent to ‘‘discharge” or "pay,” as in an agreement by one person to cancel the indebtedness of another to a third

girson. Auburn City Bank v. Leonard. 40

arb. (N. Y.) 119.

Synonyms. Cancellation is properly dis- tinguished from obliteration in this, that _ the former is a crossing out, while the latter is a blotting out ; the former leaves the words still legible, while the latter renders them illegible., Townshend v. Howard, 86 Me. -85, 29 Atl. 1077. “Spoliation” is the erasure or altera- tion of a writing by a stranger, and may amount to a cancellation if of such a nature as to in-, validate it on its face; but defacement of an Instrument is not properly called spoliation if performed by one having control of the in- strument as its maker or one duly authorised to destroy it “Revocation” is an act of the mind, of which cancellation may be a physical manifestation; but cancellation does not re- voke unless done with that intention. Dan v. Brown. 4 Cow. (N. Y.) 490. 15 Am. Dec. 39a, In re Woods’ Will (Sur.) 11 N. Y. Supp. 157.

5e apparatus — Not carried into the 5th edition (1979).

## CANAL.

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An artificial ditch or trench in the earth, for confining water to a defined channel, to be used for purposes of transportation.

The meaning of this word, when applied to artificial passages for water, is a trench or excavation in the earth, for conducting wa- ter and confining it to narrow limits. It is unlike the words “river.” “pond, ’ lake, and other words used to designate natural bodies of water, the ordinary meaning of which is con- fined to the water itself; but it includes also the banks, and has reference rather to the ex- cavation or channel as a receptacle for the water; it is an artificial thing. Navigation Co. v. Berks County, 11 Pa. 202 ; Bishop v. Seeley. 18 Conn. 393; Kennedy v. Indianapolis, 103

U. S. 604, 26 L. Ed. 550.

5e apparatus — Carried into the 5th edition (1979).

## CANCEL.

To obliterate, strike, or cross out; to destroy the effect of an instrument by defacing, obliterating, expunging, or eras- ing it.

In equity. Courts of equity frequently cancel instruments which have answered the end for which they were created, or instru- ments which are void or voidable, in order to prevent them from being vexatlously used against the person apparently bound by them. .Snell, Eq. 498.

The original and proper meaning of the vrord “cancellation” is the defacement of a writing by drawing lines across it in the form of crossbars or lattice work; but the same legal result may be accomplished by drawing lines through any essential part, erasing the sig- nature, writing the word ‘canceled on the face of the instrument, tearing off seals, or any similar act which puts the instrument in a condition where its invalidity appears on its face. In re Akers’ Will.. 74 App. Djv. 461. 77

N. Y. Supp. 643 ; Baldwin v. Howell, 45 N. J. Eq. 519. 15 Atl. 236: In re Algers Will. 38 Misc. Rep. 143, 77 N. Y. Supp 166; Evans Appeal. 58 Pa. 244: Glass v. Scott, 14 Colo. App. 377, 60 Pac. 186 ; In re Olmsted s Es- tate 122 Cal. 224. 54 Pac. 745 ; Doe v. Perkes, 3 Barn. & A. 492. A revenue stamp is can- celed by writing on its face the initials of the person using or affixing it. Spear v. Alexan- der. 42 Ala. 575. , . , ,

There is also a secondary or derivative mean- ing of the word', in which it signifies annulment or abrogation by the act or agreement of par- ties concerned, tliouirh without physical de- facement. Golden v. Fowler, 26 Ga. 404: Win- ton v. Spring, 18 Cal. 455. And “cancel may

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 2:14, KJV]**

Blotting out the handwriting of ordinances that was against us, which was contrary to us, and took it out of the way, nailing it to his cross.

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Why: To cancel is to destroy the effect of an instrument by obliteration; the verse depicts exactly that legal image — the handwritten bond blotted out and taken out of the way — genuinely illuminating cancellation as a co...

## CANCELL  ARIA.

Chancery; the court of chancery. Curia cancclla‌ria is also used in the same sense. See 4 Bl. Comm. 46; Cowell

CuaceUaril Angli* dignltaa est, ut •«- euadus a rtge la regno habetnr. The

dignity of the chancellor of England is that he is deemed the second from the sovereign in the kingdom. 4 Inst 78.

5e apparatus — Not carried into the 5th edition (1979).

## CANCELLARIUS.

A chancellor; a scrivener, or notary. A janitor, or one who stood at the door of the court and was ac- customed to carry out the commands of the Judges.

5e apparatus — Not carried into the 5th edition (1979).

## CANCELLATURA.

In old English law. A cancelling. Bract. 3986.

5e apparatus — Not carried into the 5th edition (1979).

## CANCELLI.

The rails or lattice work or balusters inclosing the bar of a court of Jus- tice or the communion table. Also the lines drawn on the face of a will or other wilt- ing, with the intention of revoking or an- nulling it. See Cancel.

5e apparatus — Not carried into the 5th edition (1979).

## CANDIDATE.

A person who offers him- self, or Is presented by others, to be elected to an office. Derived from the Latin Candi- das, (white,) because in Rome it was the custom for those who sought office to clothe themselves in white garments.

One who seeks or aspires to some office or privilege, or who offers himself for the same. A man Is a candidate for an office when he is seeking such office. It is not necessary that he should have been nominated for the of- fice. Leonard v. Coin., 112 Fa. 624, 4 Atl. 224. See State v. Hirsch, 125 Ind. 207, 24

N. E. 1062, 9 L R. A. 170.

5e apparatus — Carried into the 5th edition (1979).

## CANDLEMAS-DAY.

In English law. A festival appointed by the church to be ob- served on the second day of February in every year, in honor of the purification of the Virgin Mary, being forty days after her miraculous delivery. At this festival, form-

LjOOQle

. CAP OF MAINTENANCE

erly, the Protestants went, apd the Papists now go. In procession with lighted candles; they also consecrate candles on this day for the service of the ensuing year. It Is the fourth of the four cross quarter-days of the year. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 2:22, KJV]**

And when the days of her purification according to the law of Moses were accomplished, they brought him to Jerusalem, to present him to the Lord.

Why: Candlemas-Day is kept in honor of the Virgin Mary's purification forty days after the birth; the verse records the scriptural event the feast commemorates — the purification according to the law of Moses — genuinely i…

# O

## OANFARA.

In old records. A trial by hot iron, formerly used In England. Whish- aw.

CANON. 1. A law, rule, or ordinance in general, and of the church In particular. An ecclesiastical law or statute.

— Canon law. A body of ecclesiastical juris- prudence which, in countries where the Roman Catholic church is established, is composed of maxims and rules drawn from patristic sources, ordinances and decrees of general councils, and the decretals and bulls of the popes. In Eng- land, according to Blackstone, there is a kind of national canon law, composed of legatine and provincial constitutions enacted in England prior to the reformation, and adapted to the exigencies of the English church and kingdom.

1 Bl. Comm. 82. The canon law consists part- ly of certain rules taken out of the Scripture, partly of the writings of the ancient fathers of the church, partly of the ordinances of general and provincial councils, and partly of the de- crees of the popes in former ages; and it is contained in two principal parts,— the decrees and the decretals. The decrees are ecclesiastical constitutions made by the popes and cardinals. The decretals are canonical epistles written by the pope, or by the pope and cardinals, at the suit of one or more persons, for the ordering and determining of some matter of controversy, and have the authority of a law. As the decrees set out the origin of the canon law, and the rights, dignities, and decrees of ecclesiastical persons, with their manner of election, ordina- tion, etc., so the decretals contain the law to be used in the ecclesiastical courts. Jacob— Canon religiosomm. In ecclesiastical rec- ords. A book wherein the religious of every greater convent had a fair transcript of the rules of their order, frequently rend nmong them as their local statutes. Konnett, Gloss. ; Cowell.

2. A system or aggregation of correlated rules, whether of statutory origin or other- wise, relating to and governing a particular department of legal science or a particular branch of the substantive law.

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— Canons of construction. The system of fundamental rules and maxims which arc recognized as governing the construction or inter- pretation of written instruments. — Canons of descent. The legal rules -by which inheritan- ces are regulated, and according to which es- tates are transmitted by descent from the an- cestor to the heir. — Canons of inheritance. The legal rules by which inheritances are regu- lated. and according to which estates are trans- mitted by descent from the ancestor to the heir.

2 Bl. Comm. 208.

3. A dignitary of the English church, be- ing a prebendary or member of a cathedral chapter.

4. In the civil, Spanish, and Mexican law, an annual charge or rent; an emphyteutic rent.

5. In old English -records, a prestation, pension, or customary payment.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CANONICAL.

(Pertaining to, or in con- formity to, the canons of the church.

— Canonical obedience. That duty which a clergyman owes to the bishop who ordained him, to the bishop in whose diocese he is beneficed, and also to the metropolitan of such bishop. Wharton.

CANONICUS*. In old English law. A canon. Fleta, lib. 2, c. 60, § 2.

5e apparatus — Not carried into the 5th edition (1979).

## CANONIST.

One versed and skilled In the canon law; a professor of ecclesiastical law.

5e apparatus — Carried into the 5th edition (1979).

## CANONRY.

In English ecclesiastical law. An ecclesiastical benefice, attaching to the office of canon. Holthouse.

5e apparatus — Carried into the 5th edition (1979).

## CANT.

In the civil law. A method of dividing property held in common by two or more joint owners. See Hayes v. Cuuy, 9 Mart. O. S. (La.) 87.

CANTEL, or CANTLE. A lump, or that which is added above measure; also a piece of anything, as “cantel of bread,” or the like. Blount.

5e apparatus — Carried into the 5th edition (1979).

## CANTERBURY, ARCHBISHOP OF.

In English ecclesiastical law. The primate of all England; the chief ecclesiastical digni- tary in

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the church. His customary privilege is to crown the kings and queens of England; while the Archbishop of York has the privi- lege to crown the queen consort, and be her perpetual chaplain. The Archbishop of Can- terbury has also, by 125 Hen. VIII. c. 21, the power of granting dispensations in any ease not contrary to the holy scriptures and the law of God, where the pope used formerly to grant them, which is the foundation of liis granting special licenses to marry at any place or time; to hold two livings, (which must be confirmed under the great seal.) and the like; and on this also Is founded the right lie exercises of conferring degrees in prejudice of the two universities. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CANTRED.

A district comprising a hun- dred villages; a hundred. A term used In Wales in the same sense as “hundred” is In England. Cowell; Ternies de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## CANUM.

In feudal law. A species of duty or tribute payable from tenant to lord, usually consisting of produce of the land.

5e apparatus — Not carried into the 5th edition (1979).

## CANVASS.

The act of examining and counting the returns of votes cast at a pub- lic election. Bowler v. Eisenhood, 1 S. Dak. 577, 48 N. W. 136, 12 L. R. A. 705; Clark v. Tracy, 95 Iowa, 410, 64 N. W. 290; Hudson v. Solomon, 19 Kan. 180; People v. Snusa- llto, 106 Cal. 500, 39 Pac. 937 ; In re Stew- art, 24 App, Dlv. 201, 48 N. Y. Supp. 957.

5e apparatus — Carried into the 5th edition (1979).

## CAP OF MAINTENANCE.

One of the

regalia or ornaments of state belonging to

the sovereigns of England, before whom it is carried at the coronation and other great solemnities. Caps of maintenance are also carried before the majors of several cities in England. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## CAPACITY.

Legal capacity Is the attri- bute of a person who can acquire new rights, or transfer rights, or assume duties, accord- ing to the mere dictates of his own will, as manifested in juristic acts, without any re- straint or hindrance arising from his status or legal condition.

Ability; qualification; legal power or right Applied in this sense to the attribute of per- sons (natural or artificial) growing out of their status or juristic condition, which en- ables them to perform civil acts ; as capacity to hold lands, capacity to devise, etc. Bur- gett ▼. Barrick, 25

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Kan. 530; Sargent v. Bur- dett, 96 Qa. Ill, 22 S. E 667.

5e apparatus — Carried into the 5th edition (1979).

## CAP AX SOU.

Lab Capable of com- mitting crime, or capable of criminal intent The phrase describes the condition of one who has sufficient intelligence and compre- hension to be held criminally responsible for his deeds.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus reus non facit reum nisi mens sit rea — 'the act does not make one guilty unless the mind be guilty']**

The entry's 'capable of criminal intent' is the pivot of the mens rea doctrine: no guilty mind, no guilt — the act alone does not make the actor a criminal.

Why: Genuine: the entry defines the capacity for criminal intent; the maxim is the classical rule that makes such capacity the necessary condition of criminal responsibility. A standard, confidently real maxim.

## CAP AX NEGOTU.

Competent to trans- act affairs; having business capacity.

5e apparatus — Not carried into the 5th edition (1979).

## CAPE.

In English practice. A judicial writ touching a plea of . lands or tenements, divided into cape magnum, or the grand oape, which lay before “appearance to sum- mon the tenant to answer the default, and also over to the demandant; the cape ad va- l enttam was a species of grand cape, and cape parvum, or petit cape, after appearance or view granted, summoning the tenant to answer the default only. Termes de la Ley; 3 Stepb. Comm. 606, note.

— Cape ad Tulentlam. A species of cane magnum. — Grand oape. A judicial writ in the old real actions, which issued for the demandant where the tenant, after being duly summoned, neglected to appear on the return of the writ, or to cast an essoin, or, in case of an essoin being cast, neglected to appear on the adjourn- ment day of the essoin ; its object being to com- pel an appearance. Rose. Real Act. 165, et seq. It was called a “cape," from the word with which it commenced, and a “grand cape” (or oape magnum) to distinguish it from the petit oape, which lay after appearance.

5e apparatus — Not carried into the 5th edition (1979).

## CAPEUA.

In old records. A box, cabinet, or repository in which were pre- served the relics of martyrs. Spelman. A small building in which relics were preserv- ed; an oratory or chapel. Id.

In old English law. A chapel. Fleta, lib. 5, c. 12, | 1 ; Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAPERS.

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Vessels of war owned by pri- vate persons, and different from ordinary privateers only in size, being smaller. Beawes, Lex Merc. 230.

CAPIAS, l^at. “That you take.” The general name for several species of writs, the common characteristic of which is that they require the officer to take the body of the de- fendant into custody; they are writs of at- tachment or arrest.

In English practice. A Capias is the process on an indictment when the person charged is not in custody, and in cases not otherwise provided for by statute. 4 Steph. Comm. 383.

— Capias ad andiendnm indicium. A writ issued, in a case of misdemeanor, after the de- fendant has appeared and is found guilty, to bring him to hear judgment if he is not present when called. 4 Bl. Comm. 368.— Capias ad oompntandnm. In the action of account ren- der, after judgment of quod computet, if the de- fendant refuses to appear personally before the auditors and make his account, a writ by this name may issue to compel him.— Capias ad re- spondendum. A judicial writ, (usually simply termed a “capias,") by which actions at law were frequently commenced ; and which com- mands the sheriff to take the defendant, and him safely keep, so that he may have his body before the court on a certain day, to answer the plaintiff in the action. 3 Bl. Comm. 282; 1 Tidd, Pr. 128. The name of this writ is com- monly abbreviated to oa. resp.— Capias ad sat- isfaciendum. A writ of execution, (usually termed, for brevity, a “ca. so.,”) which a party may issue after having recovered judgment against another in certain actions at law. It commands the sheriff to take the party named, and keep him safely, so that he may have his body before the court on a certain day, to sat- isfy the party by whom it is issued, the dam- ages or debt and damages recovered by the judg- ment. Its effect is to deprive the party taken of his liberty until he makes the satisfaction awarded. 3 Bl. Comm. 414, 415 ; 2 Tidd, Pr. 993, 1025; Litt. f 504; Co. Litt. 289a; Strong v. Linn, 5 N. J. Law, 803.— Capias extendi facias. A writ of execution issuable in Eng- land against a debtor to the crown, which com- mands the sheriff to "take” or arrest the body, and "cause to be extended” the lands and goods of the debtor. Man. Exch. Pr. 5. — Capias in withernam. A writ, in the nature of a re- prisal, which lies for one whose goods or cattle, taken under a distress, are removed from the county, so that they cannot be replevied, com- manding the sheriff to seize other goods or cat- tle of the distrainor of equal value.— Capias pro fine. (That you take for the fine or In mercy.) Formerly, if the verdict was for the defendant, the plaintiff was adjudged to be amerced for his false claim ; but. if the verdict was for the plaintiff, then in all actions vi et armis, or where the defendant, In his pleading, had falsely denied his own deed, the judgment contained an award of a capiatur pro fine; and In all other cases the defendant was adjudged to be amerced. The insertion of the misericordia or of the capiatur in the judgment is now un- necessary. Wharton.— Capias utlagatum.

(You take the outlaw.) In English practice. A wHt which lies against a person who has been outlawed in an action, by which the sheriff is commanded to take him, and keep him in cus- tody until the day of the return, and then pre- sent him to the court, there to be dealt with for his contempt. Reg. Orig. 1385; 3 Bl. Comm. 284.

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5e apparatus — Not carried into the 5th edition (1979).

## CAPIATUR PRO FINE.

(Let him be taken for the fine.) In English practice. A clause inserted at the end of old judgment records in actions of debt, where the defend- ant denied bis deed, and it was found against

blm upon his false plea, and the jury were troubled with the trial of It. Cro. Jae. 64.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITA.

Heads, and, figuratively, en- tire bodies, whether of persons or animals. Spelman.

Persons individually considered, without relation to others, (polls;) as distinguished from stirpet or stocks of descent. The term in this sense, making part of the common phrases, in capita, per capita, is derived from the civil law. Inst. 3, 1, 6.

7- Capita, per. By heads ; by the poll ; as individuals. In the distribution of an intestate's personalty, the persons legally entitled to take are said to take per capita when they claim, each in his own right, as in equal degree of kin- dred ; in contradistinction to claiming by right of representation, or per stirpet.

CAP IT Ali, ». In political economy, mat portion of the. produce of Industry existing in a country, which may be made directly available, either for the support of human existence, or the facilitating of production; but. In commerce, and as applied to individ- uals, It is understood to mean the sum of money which a merchant, banker, or trader adventures in 'any undertaking, or which he contributes to the common stock of a part- nership. Also the fund of a trading com- pany or corporation, in which sense the word “stock" Is generally added to It. Pearce v. Augusta, 87 6a. 599; People v. Peitner, 56 App. Div. 280, 67 N. Y. Supp. 893; Webb v. Armistead (C. C.) 26 Fed. 70.

The actual estate, whether in money or property, which Is owned by an Individual or a corporation. In reference to a corporation, it is the aggregate of the sum subscribed and paid In, or secured to be paid in, by the shareholders, with the addition of all gains or profits realized in the use and investment of those sums, or, if losses have been in- curred, then It is the residue after deducting such losses. See Capital Stock.

When used with respect to the property of a corporation or association, the term has a set- tled meaning. It applies only to the property or means contributed by the stockholders as the fund or basis for the business or enterprise for which the corporation or association was form- ed. As to them the term does not embrace tem- porary loans, though the moneys borrowed be directly appropriated in their business or under- takings. And, when used with respect to the property of individuals in any particular busi- ness, the term has substantially the same im- port; it then means the property taken from other investments or uses and set apart for and invested in the special business, and in the in- crease. proceeds, or earnings of which property beyond expenditures incurred in its use consist the profits made in the business. It does not. any more than when used with respect to corpo- rations, embrace

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temporary loans made in the regular course of business. Bailey v. Clark. 21 Wall. 280, 22 L. Ed. 651.

The principal sum of a fund of money; money invested at Interest.

Also the political and governmental me- tropolis of a state or country; the seat of

government; the place where the legislative department holds Its sessions, and where the chief offices of the executive are located.

OAPITAX, adj. Affecting or relating to the head or life of a persou; entailing the ultimate penalty. Thus, a capital crime la one punishable with death. Walker v. State, 28 Tex. App. 503, 13 S. W. 860; Ex parte McCrary, 22 Ala. 72; Ex parte Dusenberry, 97 Mo. 504, 11 S. W. 217. Capital punishment Is the punishment of death.

Also principal; leading; chief; as “cap- ital burgess.” 10 Mod. 100.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OAPITAX.**

STOCK. The common stock or fund of a corporation. The sum of money raised by the subscriptions of the stockhold- ers, and divided into shares. It Is said to be the sum upon which calls may be made upon the stockholders, and dividends are to be paid. Christensen v. Bno, 106 N. Y. 97, 12 N.

E. 648, 60 Am. Rep. 429 ; People v. Com’rs, 23 N. Y. 219; State v. Jones, 51 Ohio St. 492, 37 N. E. 945; Burrall v. Railroad Co., 75 N.

Y. 216.

Originally ‘‘the capital stock of the bank" was all the property of every kind, everything, which the bank possessed. And this “capital stock.” all of it, in reality belonged to the contributors, it being intrusted to the bank to be used and traded with for their exclusive benefit ; and thus the bank became the agent of the contributors, so that the transmutation of the money orig- inally advanced by the subscribers into property of other kinds, though it altered the form of the investment, left its beneficial ownership unaf- fected ; and every new acquisition of property, by exchange or otherwise, was an acquisition for the original subscribers or their representa- tives, their respective interests in it all always continuing in the same proportion as 4n the ag- gregate capital originally advanced. So that, whether in the form of money, bills of exchange, or any other property in possession or in ac- tion into which the money originally contributed has been changed, or which it has produced, all is, as the original contribution was, the capital stock of the bank, held, as the original contribu- tion was, for the exclusive benefit of the orig- inal contributors and those who represent them. The original contributors and those who repre- sent them are the stockholders. New Haven v. City Hank, 31 Conn. 109. Capital stock, as employed in acts of incorporation, is never used to indicate the value of the property of the com- pany. It is very generally, if not

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universally, used to designate the amount of capital prescrib- ed to be contributed at the outset by the stock- holders, for the purposes of the corporation. The value of the corporate assets may be greatly increased by surplus profits, or be diminished by losses, but the amount of the capital stock re- mains the same. The fundB of the company may fluctuate; its capital stock remains invari- able. unless changed by legislative authority. Canfield v. Fire Ass’n, 23 N. J. Law, 195.

5e apparatus — Not carried into the 5th edition (1979).

### OAPITAXE.

A thing which is stolen, or the value of It. Blount.

CAP IT AXE VTVElfS. Live cattle.

Blount.

5e apparatus — Not carried into the 5th edition (1979).

# C

### CAPITAUS.

In old English law. Chief, principal; at the head. A term applied to

persons, places, Judicial proceedings, and some kinds of property.

— Capltalis baro. In old English law. Chief baron. Capitaiia baro scacoarii domini regie, chief baron of the exchequer. Townsh. Pi. 211. — Capltalis oustos. Chief warden or magis- trate; mayor. Fleta, lib. 2, c. 04, § 2.— Capi- talls debitor. The chief or principal debtor, as distinguished from a surety, (plcgius.)— Cap- italis dominus. Chief lord. Fleta, lib. 1, c. 12, § 4 ; Id. c. 28, § 5.— CapitaUs justlciari- ns. The chief justiciary ; the principal min- ister of state, and guardian of the realm in the king's absence. This office originated under William the Conqueror; but its power was greatly diminished by Magna Charta, and final- ly distributed among several courts by Edward

I. Spelman • 3 Bi. Comm. 38.— Capltalis jus- ticiarlns ad plaelta ooram ren teaenda. Chief justice for holding pleas before the king. The title of the chief justice of the king’s bench, first assumed in the latter part of the reign of Henry III. 2 Reeve, Eng. Law, 91, 285. — Capltalis justiciarlus band. Chief justice or the bench. The title of the chief jus- tice of the (now) court of common pleas, first mentioned in the first year of Edward I. 2 Reeve, Eng. Law, 48. — Capltalis jnstidarins totias anglise. Chief justice of all England. The title of the presiding justice in the court of aula regia. 3 Bl. Comm. 38; 1 Reeve, Eng. Law, 48.— Capltalis plegins. A chief pledge ; a head borough. Townsh. Pl. 35.— Capltalis redltns. A chief rent. — Capltalis terra. A head-land. A piece of land lying at the head of other land.

5e apparatus — Not carried into the 5th edition (1979).

### CAPITANEUS.

A tenant in capite. He who held his land or title directly from the king himself. A captain; a

naval com- mander.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITARE.

In old law and surveys. To head, front, or abut; to touch at the head, or end.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITATIM.

Lat. By the head; by the poll; severally to each individual.

‘ CAPITATION TAX. One which Is lev- ied upon the person simply, without any ref- erence to his property, real or personal, or to any business In which he may be engaged, or to any employment which he may follow. Gardner v. Hall, 61 N. C. 22 ; Leedy v. Bour- bon, 12 Ind. App. 486, 40 N. E. 640; Head- Money Cases (C. C.) 18 Fed. 139.

A tax or imposition raised on each per- son In consideration of his labor, Industry, office, rank, etc. It is a very ancient kind of tribute, and answers to what the Latins called “tribulum,” by which taxes on per- sons are distinguished from taxes on mer- chandise, called “vectigaUa.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 4 — 'No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration']**

A capitation or poll tax is the Constitution's paradigmatic 'direct tax': none may be laid except in proportion to the census or enumeration.

Why: Genuine: the entry defines the tax levied per head without reference to property; the clause is the real constitutional constraint on exactly that levy. Quoted briefly and exactly.

## CAPITE.

Lat. By the head. Tenure in capite was an ancient feudal tenure, where- by a man held lands of the king immediate- ly. It was of two sorts, — the one, .principal and general, or of the king as the source of all tenure; the other, special and subaltern, or of a particular subject. It is now abolish- ed. Jacob. As to distribution per capita, see Capita.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITE MINUTES.

In the civil law. One who had suffered capitis diminutio, one who lost status or legal attributes. See Dig. 4, 5.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITIS DIMINUTIO.

In Roman law. A diminishing or abridgment of personality. This was a loss or curtailment of a man's status or aggregate of legal attributes and qualifications, following upon certain changes in his civil condition. It was of three kinds, enumerated as follows:

Capitis diminutio maxima. The high- est or most comprehensive loss of status. This

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occurred when a man's condition was changed from one of freedom to one of bond- age, when he became a slave. It swept away with It all rights of citizenship and all family rights.

Capitis diminutio media. A lesser or medium loss of status. This occurred where a man lost his rights of citizenship, but with- out losing his liberty. It carried away also the family rights.

Capitis diminutio minima. The lowest or least comprehensive degree of loss of status. This occurred where a man’s family relations alone were changed. It happened upon the arrogatlon of a person who had been his own master, (s»t juris,) or upon the emancipation of one who had been under the patria potcstas. It left the rights of liberty and citizenship unaltered. See Inst 1, 16, pr. ; I, 2, 3; Dig. 4, 5, 11; Mackeld. Rom. Law, { 144.

CAPITmUM. A covering for the head, mentioned in St. 1 Hen. IV. and other old statutes, which prescribe what dresses shall be worn by all degrees of persons. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITULA.

Collections of laws and or- dinances drawn up under heads of divisions. Spelman.

The term is used In the civil and old Eng- lish law, and applies to the ecclesiastical law also, meaning chapters or assemblies of ecclesiastical persons. Du Cange.

— Capitulu coronse. Chapters of the crown. Chapters or heads of inquiry, resembling the oapitula itineris. (infra) but of a more minute character. — Capitula de Judsels. A register of mortgages made to the Jews. 2 Bl. Comm. 343 ; Crabb, Eng. Law, 130, et seq.— Capitula it inert*. Articles of inquiry which were an- ciently delivered to the justices in eyre when they set out on their circuits. These schedules were designed to include all possible varieties of crime. 2 Reeve, Eng. Low, p. 4, c. 8. — Capi- tula ruralia. Assemblies or chapters, held by rural deans and parochial clergy, within the precinct of every deanery ; which at first were every three weeks, afterwards once a month, and subsequently once a quarter. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITULARY.

In French law. A

collection and code of the laws and ordi- nances promulgated by the kings of the Me- rovingian and Carlovingian dynasties.

5e apparatus — Not carried into the 5th edition (1979).

## CAPTURE.

Any orderly and systematic collection or code of laws.

In ecclesiastical law. A collection of laws and ordinances orderly arranged by di- visions. A book containing the beginning and end of each Gospel which is to be read every day In the ceremony of saying mass. Da Cange.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (1805)]**

The entry's rule that wild animals are captured into ownership by confinement or killing is the common-law first-occupancy doctrine as settled in the fox-hunt case.

Why: Genuine: the entry states the wild-animal capture rule in general terms; Pierson v. Post is the landmark American decision stating it ('occupancy' by mortal wounding and pursuit). Confident this case and citation are…

**[Scripture] — Scripture**

**[Deuteronomy 20:14, KJV]**

But the women, and the little ones, and the cattle, and all that is in the city, even all the spoil thereof, shalt thou take unto thyself; and thou shalt eat the spoil of thine enemies, which the LORD thy God hath given thee.

Why: The entry's international-law sense is the taking of enemy property by a belligerent; the verse is the biblical law of war-spoil — the enemy's property taken unto the captor — genuinely illuminating capture as a legal…

**[Humanity] — Humanity / Fiction & Film**

**[Patrick O'Brian, Master and Commander, 1969]**

(paraphrase) A Royal Navy captain's fortunes turn on taking enemy ships as prize at sea — capture as a lawful mode of acquiring property in war. (paraphrase)

Why: Two entries share this headword; this annotation attaches to the international-law sense (taking property from a belligerent; 'prize' at sea). O'Brian's naval novels are built around prize capture. Paraphrase only.

## CAPITULATION.

In military law.

The surrender of a fort or fortified town to a besieging army; the treaty or agreement be- tween the commanding officers which em- bodies the terms and conditions on which the surrender Is made.

In the civil law. An agreement by

which the prince and the people, or those who have the right of the people, regulate the manner in which the government is to be administered. Wolfflus, § 989.

5e apparatus — Not carried into the 5th edition (1979).

## CAPITTJXI AGRI.

Head-fields; lands

lying at the head or upper end of furrows etc.

Capital mn est clericonun eongregatio ■nb nno deoano in ecclesia cathedral!.

A chapter is a congregation of clergy under one dean in a cathedral church. Co. Litt. 98.

5e apparatus — Not carried into the 5th edition (1979).

## CAPPA.

In old records. A cap. Cappa honoris, the cap of honor. One of the so- lemnities or ceremonies of creating an earl or marquis.

5e apparatus — Not carried into the 5th edition (1979).

## CAPTAIN.

A head-man ; commander ; commanding officer. The captain of a war- vessel is the officer

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first in command. In the United States navy, the rank of “captain” is intermediate between that of “command- er” and "commodore.” The governor or con- trolling officer of a vessel in the merchant service is usually styled “captain” by the in- ferior officers and seamen, but in maritime business and admiralty law is more common- ly designated as “master.” In foreign juris- prudence his title is often that of “patron.” In the United States army (and the militia) the captain is the commander of a company of soldiers, one of the divisions of a regiment. The term is also used to designate the com- mander of a squad of municipal poljce.

The "captain of the watch” on a vessel is a kind of foreman or overseer, who, under the supervision of the mate, has charge of one of the two watches into which the crew is divided f»r the convenience of work. He calls them out and in, and directs them where to store freight, which packages to move, when to go or come ashore, and generally directs their work, and is an “officer” of the vessel within the meaning of statutes regulating the conduct of officers to the seamen. U. S. v. Trice (D. C.) 30 Fed. 491.

5e apparatus — Carried into the 5th edition (1979).

## CAPTATION.

In French law. The act of one who succeeds In controlling the will of another, so as to become master of it; used in an invidious sense. Zerega v. Peret- val, 46 La. Ann. 590, 15 South. 476.

5e apparatus — Carried into the 5th edition (1979).

## CAPTATOR.

A person who obtains a gift or legacy through artifice.

5e apparatus — Not carried into the 5th edition (1979).

## CAPTIO.

In old English law and prac- tice. A taking or seizure ; arrest; receiving; holding of court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CAPTION.

In practice. That part of a legal instrument, as a commission, indict- ment, etc., which shows where, when, and by what authority it is taken, found, or exe- cuted. State v. Sutton, 5 N. C. 281; U. S. v. Beebe, 2 Dak. 292, 11 N. W. 505; State v. Jones, 9 N. J. Law, 365, 17 Am. Dec. 483.

When used with reference to an indictment, caption signifies the style or preamble or com- mencement of the indictment; when used with reference to a commission, it signifies the cer- tificate to which the commissioners’ names are subscribed, declaring when and where it was ex- ecuted. Brown.

The caption of a pleading, deposition, or other paper connected with a case in court, is the heading or introductory clause which shows the names of the parties, name of the court, number of the case on the docket or calendar, etc.

Also signifies a taking, seizure, or arrest of a person. 2 Salk. 498. The word in this sense is now obsolete in English law.

In Scotch law. Caption is an order to incarcerate a debtor who has disobeyed an order, given to him by what are called “let- ters of horning," to pay a debt or to perform some act enjoined thereby. Bell.

5e apparatus — Not carried into the 5th edition (1979).

### CAPTIVES.

Prisoners of war. As in the goods of an enemy, so also in his person, a sort of qualified property may be acquired, by taking him a prisoner of war, at least till his ransom be paid. 2 Bl. Comm. 402.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[David Lean, The Bridge on the River Kwai, 1957]**

(paraphrase) British prisoners of war in a Japanese camp are driven to build a bridge for their captors, testing the limits of what captivity can command. (paraphrase)

Why: The entry defines captives as prisoners of war. The film is the canonical cinematic treatment of POW captivity. Fit is to 'prisoners of war' generally; paraphrase of premise only.

## G

### GAPTOR.

In international law. One who takes or seizes property in time of war; one who takes the property of an enemy. In a stricter sense, one who takes a prize at sea. 2 Bl. Comm. 401; 1 Kent, Comm. 80, 96, 103.

5e apparatus — Not carried into the 5th edition (1979).

## C

### CAPTURE.

In international law. The taking or wresting of property from one of two belligerents by the other. It occurs either on land or at sea. In the former case, the property captured is called “booty;” in the latter case, “prize.”

Capture, in technical language, is a taking by military power; a seizure is a taking by civil authority. U. S. v. Athens Armory, 35 Ga. 344, Fed. Cas. No. 14,473.

In some cases, this is a mode of acquiring property. Thus, every one may, as a general rule, on his own laud, or on the sea. capture any wild animal, and acquire a qualified own- ership in it by confining it, or absolute own- ership by killing it. 2 Steph. Comm. 79.

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## CAFUT.

A head; the head of a person; the whole person ; the life of a person; one’s personality; status; civil condition.

At common law. A head.

Caput comitatis, the head of the county ; the sheriff; the king. Spelman.

A person; a life. The upper part of a town. Cowell. A castle. Spelman.

In tbe civil law. It signified a person’s civil condition or status, and among the Ro- mans consisted of three component parts or elements, — libertas, liberty; civitas, citizen- ship; and familta, family.

—Capitis aestimatio. In Saxon law. The estimation or value of the head, that is, the price or value of a man’s life.— ^ Caput aniil. The first day of the year/— Caput baronise. The castle or chief seat of a baron.— Caput JeJunii. The beginning of the Lent fast, *. e., Ash Wednesday.— Caput loci. The head or upper part of a place.— Caput luplnum. In old English law. A wolfs head. An outlawed felon was said to be caput Jupimm, and might be knocked on the head, like a wolf.— Caput mortuum. A dead head ; dead ; obsolete.— Caput portus. In old English law. The head of a port. The town to which a port be- longs, and which gives the denomination to the port, and is the head of it. Hale de Jure Mar. pt. 2, (is portubus marts.) c. 2.— Cauut. prin- cipium, ct finis. The head, beginning, and end. A term applied in English law to the king, as head of parliament. 4 Inst 3 : 1 Bl. Comm. 188.

5e apparatus — Not carried into the 5th edition (1979).

## CAPUTAGIUM.

In old English law. Head or poll money, or the payment of It. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CAFUTTCM.

In old English law. A head of land; a headland. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CARABUS.

In old English law. A kind of raft or boat Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CARAT.

A measure of weight for dia- monds and other precious stones, equivalent to three and one-sixth grains Troy, though divided by Jewelers Into four parts called “diamond grains.” Also a standard of fine- ness of gold, twenty-four carats being con- ventionally taken as expressing absolute purity, and the proportion of gold to alloy In a mixture being represented as so many carats.

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# O

**OARCAH.**

In French law. An instru- ment of punishment, some what resembling a pillory. It sometimes signifies the punish- ment Itself. Blret, Vocab.

5e apparatus — Not carried into the 5th edition (1979).

# C

**C ARCANUM.**

A gaol; a prison.

5e apparatus — Not carried into the 5th edition (1979).

**CARCARE.**

In old English law. To load ; to load a vessel ; to freight

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# O

**OARCATUS.**

Loaded; freighted, as a ship.

5e apparatus — Not carried into the 5th edition (1979).

# C

**C ARCEL-AGE.**

Gaol-dues ; prison-fees.

5e apparatus — Not carried into the 5th edition (1979).

**CARCER.**

A prison or gaol. Strictly, a place of detention and safe-keeping, and not of punishment. Co. Lltt 620.

Career ad homines eustodiendos, non ad puniendos, dari debet. A prison should be used for keeping persons, not for punish- ing them. Co. Lltt. 260a.

Career non supplicii oausfi sed cus- todies eonstitutus. A prison Is ordained not for the sake of punishment, but of de- tention and guarding. Lofft, 119.

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## CARDINAL.

In ecclesiastical law. A dignitary of the court of Rome, next in rank to the pope.

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## CARDS.

In criminal law. Small palters or pasteboards of an oblong or rectangular shape, on which are printed figures or points, used in playing certain games. See Estes v. State, 2 Humph. (Tenn.) 496; Common- wealth v. Arnold, 4 Pick. (Mass.) 251; State v. Herryford, 19 Mo. 377; State v. Lewis, 12 Wis. 434.

5e apparatus — Not carried into the 5th edition (1979).

## CARE.

As a legal term, this word means diligence, prudence, discretion, attentiveness, watchfulness, vigilance. It Is the opposite of negligence or carelessness.

There are three degrees of care in the law, corresponding (Inversely) to the three de- grees of negligence, viz.: slight care, ordinary care, and great care.

The exact boundaries between the several de- grees of care, and their correlative degrees of carelessness, or negligence, are not always clear- ly defined or easily pointed out. We think, however, that by “ordinary care” is meant that degree of care which may reasonably be expect- ed from a person in the party's situation, — that is, "reasonable care;” and _ that “gross neg- ligence” imports not a malicious intention or design to produce a particular injury, but a thoughtless disregard of consequences, the ab- sence, rather than the actual exercise, of voli- tion with reference to results. Neal v. Gillett, 23 Conn. 443. . ,.

Slight care is such as persons of ordinary prudence usually exercise about their own af- fairs of slight importance. Rev. Codes N. D. 1899, § 5109; Rev. St. Okl. 1903, I 2i82. Or it is that degree of care which a person exer- cises about his own concerns, though he may be a person of less than common prudence or of careless and inattentive disposition. Utch- field v. White, 7 N. Y. 442, 57 Am. Dec. 534; Bank v.* Guilmartin. 93 Ga. 503, 21 S. E. o5, 44 Am. St. Rep. 182.

Ordinary care is that degree of care which persons of ordinary care and prudence are ac- customed to use and employ, under the same or similar circumstances, in order to conduct the enterprise in which they are engaged to a safe and successful termination having due re- gard to the rights of others and the objects to be accomplished. Gunn v. Railroad Co.. 36

W. Va. 165. 14 S. E. 465, 32 Am. St. Rep. 842; Sullivan v. Serinture, 3 Allen (Mass.) 566; Osborn v. Woodford. 31 Kan. 290, 1 Pne. 548; Railroad Co.’ v. Terry. 8 Ohio St. 570: Railroad Co. v. McCoy. 81 Ky. 408:

Railroad Co. v. Howard, 79 Ga. 44. 3 S. BL 426 • Paden v. Van Ilia room, 100 Mo. App. 185. 74 S. W. 124.

Great care is such as persons of ordinary prudence usually exercise about affairs of their

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## CARRIAGE.

own which are of great importance; or it is that degree of care usually bestowed upon the matter in hand by the most competent, prudent and careful persons having to do with the par- ticular subject. Railway Co. v. Rollins, 5 Kan. 180: Litchfield v. White. 7 N. Y. 442. 57 Am. Dec. 5X4; Railway Co. v. Smith, 87 Tex. 348. 28 S. W. 520; Telegraph Co. v. Cook, 61 Fed. 628, 9 C. C. A. 680.

Reasonable care is such a degree of care, precaution, or diligence as may fairly and properly be expected or required, having regard to the nature of the action, or of the subject- matter, and the circumstances surrounding the transaction. “Reasonable care and skill” is a relative phrase, and, in its application as a rule or measure of duty, will vary in its require- ments. according to the circumstances under which the care and skill are to be exerted. See Johnson v. Hudson River R. Co. 6 Duer

CS. Y.) 646; Cunningham v. nail, 4 Allen (Mass.) 276; Dexter v. McCready, 54 Conn. 171. 5 Atl. 855; Appel v. Eaton & Price Co., 97 Mo. App. 428. 71 8. W. 741; Illinois Cent.

R. Co. v. Noble, 142 111. 578, 32 N. E. 684.

5e apparatus — Not carried into the 5th edition (1979).

## C ARENA.

A term used in the old eccle- siastical law to denote a period of forty days.

5e apparatus — Not carried into the 5th edition (1979).

## CARENCE.

In French law. Lack of as- sets ; insolvency. A procds-verbal de carence is a document setting out that the huissier attended to issue execution upon a judgment, but found nothing upon which to levy. Arg. Fr. Merc. Law, 547.

CARET A, (spelled, also, Garret a and Co- recta.) A cart; a cart-load.

CARETORItrS, or CARECTARIUS. A

carter. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CARGA.

In Spanish law. An Incum- brance; a charge. White, New Recop. b. 2, tit. 13, c. 2, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## CARGAISON.

In French commercial law. Cargo; lading.

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## CARGARE.

In old English law. To charge. Spelman.

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5e apparatus — Not carried into the 5th edition (1979).

## CARGO.

In mercantile law. The load or lading of a vessel; goods and merchandise put on board a ship to be carried to a cer- tain port.

Hie lading or freight of a ship ; the goods, merchandise, or whatever Is conveyed in a ship or other merchant vessel. Seamans v. Lorlng, 21 Fed. Cas. 020; Wolcott v. Insur- ance Co., 4 Pick. (Mass.) 429; Maey v. In- surance Co., 9 Mete. (Mass.) 306 ; Thwing v. Insurance Co., 103 Mass. 401, 4 Am. Rep. 567.

A cargo is the loading of a ship or other ves- sel, the bulk of which is to be ascertained from the capacity of the ship or vessel. The word embraces all that the vessel is capable of carrying. Flanagan v. Demarest, 3 Rob. (N.

The term may be applied In such a sense as to Include passengers, as well as freight, but In a technical sense It designates goods only.

5e apparatus — Carried into the 5th edition (1979).

## CARIAGITTM.

In old English law. Car- riage; the carrying of goods or other things for the king.

5e apparatus — Not carried into the 5th edition (1979).

## CARISTIA.

Dearth, scarcity, dearness. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CARK.

In old English law. A quantity of wool, whereof thirty make a sarplar. (The latter Is equal to 2,240 pounds In weight.) St 27 Hen. YI. c. 2. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## CARLISLE  TABLES.

Life and annuity

tables, compiled at Carlisle, England, about 1780. Used by actuaries, etc,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## CARMEN.

In the Roman law. Liter- ally, a verse or song. A formula or form of words used on various occasions, as of di- vorce. Tayl. Civil Law, 340.

5e apparatus — Not carried into the 5th edition (1979).

## CARNAL.

Of the body; relating to the body; fleshly; sexual.

—Carnal knowledge. The act of a man in

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having sexual bodily connection with a woman. Carnal knowledge and sexual intercourse held equivalent expressions. Noble v. State. 22 Ohio St. 541. From very early times, in the law, as in common speech, the meaning of the words “carnal knowledge” of a woman by a man has been sexual bodily connection ; and these words, without more, have been used in that sense by writers of the highest authority on criminal law, when undertaking to give a full and pre- cise definition of the crime of rape, the high- est crime of this character. Com. v. Squires, 97 Mass. 61.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die.

Why: The entry defines carnal knowledge as sexual bodily connection, the core of rape indictments; the verse is the biblical law on forced lying-with — the legal treatment of the very wrong — genuinely illuminating the con…

## CARNAXJTER.

In old criminal law. Carnally. Cornolifer cognovit, carnally knew. Technical words In Indictments for rape, and held essential. 1 Hale, P. C. 637- 639.

5e apparatus — Not carried into the 5th edition (1979).

## CARNALLY KNEW.

In pleading. A technical phrase essential in an indictment to charge the defendant with the crime of rape.

5e apparatus — Not carried into the 5th edition (1979).

## CARNO.

In old English law. An Im- munity or privilege. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAROOME.

In English law. A license by the lord mayor of London to keep a cart.

5e apparatus — Not carried into the 5th edition (1979).

## CARPEMEALS.

Cloth made in the northern parts of England, of a coarse kind, mentioned In 7 Jac. I. c. 16. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## CARRERA.

In Spanish law. A car- riage-way; the right of a carriage-way. Las Partldas, pt. 3, tit. 31, L 3.

5e apparatus — Not carried into the 5th edition (1979).

## CARRIAGE.

A vehicle used for the transportation of persons either for pleasure or business, aud drawn

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by horses hr other draught animals over the ordinary streets and highways of the country ; not including cars used exclusively upon railroads or street railroads expressly constructed for the use of such cars. Snyder v. North Lawrence, 8

Kan. 84 ; Conway v. Jefferson, 46 N. H. 526; Turnpike Co. v. Marshall, 11 Conn. 100: Cream City II. Co. v. Chicago, etc., R. Co., 63 Wis. 03, 23 N. W. 425, 53 Am. Rep. 207; Isaacs v. Railroad Co., 47 N. I. 122, 7 Am. Rep. 418.

The act of carrying, or a contract for transportation of persons or goods.

The contract of carriage Is a contract for the conveyance of property, persons, or mes- sages from one place to another. Civ. Code Cal. f 2085; Civ. Code Dak. § 1208.

C AURICLE, or CARRACLE. A ship of great burden.

5e apparatus — Not carried into the 5th edition (1979).

## CARRIER.

One who undertakes to transport persons or property from place to place, by any means of conveyance, and with or without compensation.

— Common and private carriers. Carriers are either common or private. Private car- riers are persons who undertake for the trans- portation in a particular instance only, not making it their vocation, nor holding themselves out to the public as ready to act for all who desire their services. Allen v. Sackrider, 37

N. Y. 341. To bring a person within the de- scription of a common carrier, he must exercise it as a public employment ; he must undertake to carry goods for persons generally; and he must hold himself out as ready to transport goods for hire, as a business, not as a casual occupation, pro hdc vice. Alexander v. Greene. 7 Hill (N. Y.) 564 ; Bell v. Pidgeon, (D. C.) 5 Fed. 634; Wyatt v. Irr. Co.. 1 Colo. App. 480, 29 Pac. 906. A common carrier may therefore be defined as one who, by virtue of his calling and as a regular business, undertakes for hire to transport persons or commodities from place to place, offering his services to all such as may choose to employ him and pay his charges. Iron Works v. Hurlbut. 158 N. Y. 34. 52 X.

E. 665. 70 Am. St. Rep. 432; Dwight v. Brew- ster. 1 Pick. (Mass.) 53, 11 Am. Dec. 133; Railroad Co. v. Waterbury Button Co.. 24 Conn. 479: Fuller v. Bradley. 25 Pa. 120; Mc- Dnffee v. Railroad Co.. 52 N. H. 447. 13 Am. Rep. 72 ; Piedmont Mfg. Co. v. Railroad Co.. 19 S. C. 364. By statute in several states it is declared that every one who offers to the pub- lic to carry persons, property, or messages, ex- cepting only telegraphic messages, is a common carrier of whatever he thus offers to carry. Civ. Code Cal. 8 2168; Civ. Code Mont. 8 2870; Rev. St. Okl. 1903, 8 700: Rev. Codes N. T>. 1899, 8 4224: Civ. Code S. D. 1903. 8 1577. Common carriers are of two kinds.— by land, as owners of stages, stage-wagons, railroad cars, teamsters, cartmen. draymen, and porters; and bv water, as owners of ships, steam-boats, bar- fires, ferrymen, lightermen, and canal boatmen. 2 Kent. Comm. 597— Common curriers of passengers. Common, carriers of passengers are such ss undertake for hire to carry all per- sons indifferently who may anplv for pnssaee. Oillinghnro v. Railroad

Co.. 35W Va. 588. 14

S E. 243, 14 L. R. A. 798. 29 Am SL Rep. 827; Electric Co. v. Simon. 20 Or 60. 25 Pac. 147. 10 L R. A. 251. 23 Am. St. Ren. 86: Richmond v. Southern i Par. Co.. 41 Or. 54.67 Pac. 947. 57 L, R. A. 610. 93 Am. St. Rep. 694.

5e apparatus — Carried into the 5th edition (1979).

## CARRY.

To bear, bear about, sustain, transport, remove, or convey.

— C any sway. In criminal law. The act of removal or asportation, by which the crime of larceny is completed, and which is essential to constitute it. Com. v. Adams. 7 Gray (Mass.) 45; Com. v. Pratt, 132 Mass. 246; Gettinger

v. State, 13 Neb. 308, 14 N. W. 403.— Carry arms or weapons. To wear, bear, or carry them upon the person or in the clothing or in a pocket, for the purpose of use, or for the pur- pose of being armed and rendy for offensive or defensive action in case of a conflict with an- other pereon. State v. Carter, 36 Tex. 89; State v. Roberts, 39 Mo. Anp. 47 : State v. Murray, 39 Mo. App. 128 ; Moorefield v. State, 5 Lea (Tenn.) 348; Owen v. State, 31 Ala. 389. —Carry costs. A verdict is said to carry costs when the party for whom the verdict is given becomes entitled to the payment of his costs as incident to such verdict.— Carry on business. To prosecute or pursue a particu- lar avocation or form of business as a continu- ous and permanent occupation and substantial employment A single act or business trans- action is not sufficient, but the systematic and habitual repetition of the same act may be. Drv Goods Co. v. Lester, 60 Ark. 120, 29 S.

W. 34, 27 L. R. A. 505. 46 Am. St. Rep. 162; State v. Tolman, 106 La. 662. 31 South. 320; Holmes v. Holmes, 40 Conn. 120: Railroad Co. v. Attalla, 118 Ala. 362, 24 South. 450; Terri- tory v. Harris, 8 Mont. 140. 19 Pac. 286; Sangster v. Kay. 5 Exch. 386 ; Lawson v. State, 55 Ala. 118; Abel v. State, 90 Ala. 633, 8 South. 700 ; State v. Shipley, 98 Md. 657, 57 At!. 12.— Carry stock. To provide funds or credit for its payment for the period agreed up- on from the date of purchase. Saltus v. Genin, 16 X. Y. Super. Ct. 260. And see Pickering v. Demerritt, 100 Mass. 421.

5e apparatus — Carried into the 5th edition (1979).

## CART.

A carriage for luggage or burden, with two wheels, as distinguished from a wagon, which lias four wheels. The vehicle in which criminals are taken to execution.

This word, In its ordinary and primary ac- ceptation, signifies a carriage with two. wheels ; yet It lias also a more extended sig- nification, and may mean a carriage in gen- eral. Favers v. Glass, 22 Ala. 624, 58 Am. Dec. 272.

5e apparatus — Not carried into the 5th edition (1979).

## CART BOTE.

Wood or timber which a tenant is allowed by law to take from an es- tate, for the purpose of

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repairing instru- ments, (including necessary vehicles,) of hus- bandry. 2 Bl. Comm. 35.

5e apparatus — Not carried into the 5th edition (1979).

## CARTA.

In old English law. A char- ter, or deed. Any written instrument.

In Spanish law. A letter; a deed; a power of attorney. Las Partidas, pt. 3, tit. 18, L 30.

5e apparatus — Not carried into the 5th edition (1979).

## CARTA DE FORESTA.

In old English law. The charter of the forest. More com- monly called “Charta de Forcsta," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## CARTE.

In French marine law. A chart.

5e apparatus — Carried into the 5th edition (1979).

## CARTE BLANCHE.

A white sheet of paper ; an instrument Signed, but otherwise left blank. A sheet given to an agent, with the principal's signature appended, to be fill- ed up witli any contract or engagement as the agent may see fit. Hence, metaphorical- ly, unlimited authority.

5e apparatus — Not carried into the 5th edition (1979).

## CARTEL.

An agreement between two hostile powers for the delivery of prisoners

or deserters. Also a written challenge to fight a duel.

— Cartel-ship- A vessel commissioned in time of war to exchange the prisoners of any two hostile powers; also to carry any particular proposal from one to another. For this reason, the officer who commands her is particularly ordered to carry no cargo, ammunition, or im- plements of war, except a single gun for the

fur pose of signals. Crawford v. The William ’enn, 6 Fed. Cas. 778.

5e apparatus — Not carried into the 5th edition (1979).

## CAR THEN.

Carriers who transport

goods and merchandise In carts, usually for short distances, for hire.

5e apparatus — Not carried into the 5th edition (1979).

## CARTULARY.

A place where papers or records are kept

CARUCA, or CARUA. A plow.

5e apparatus — Not carried into the 5th edition (1979).

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## CARUCAGE.

In old English law. A kind of tax or tribute anciently imposed upon every plow, (c ante or plow-land,) for the public service. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CARD CAT A.

A certain quantity of land used as the basis for taxation. As much land as may be tilled by a single plow in a year and a day. Also, a team of cattle, or a cart-load.

5e apparatus — Not carried into the 5th edition (1979).

## CARUCATARIUS.

One who held lands In carnage, or plow-tenure. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CARXTE.

A carve of land; plow-land. Britt c. 84.

5e apparatus — Not carried into the 5th edition (1979).

## CARVAGE.

The name as carucage, (q. v.) Cowell

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CARVE.

In old English law. A caru- cate or plow-land.

5e apparatus — Carried into the 5th edition (1979).

## CAS FORTUIT.

Fr. In the law of In- surance. A fortuitous event; an inevitable accident.

5e apparatus — Not carried into the 5th edition (1979).

## CASATA.

In old English law. A house with land sufficient for the support of one family. Otherwise called “hida," a hide of land, and by Bede, “ familia .” Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CASATTTS.

A vassal or feudal tenant possessing a casata; that Is, having a house, household, and property of his own.

CASE. 1. A general term for an action, danse, suit, or controversy, at law or in equity; a question contested before a court of Justice; an aggregate of facts which fur- nishes occasion for the exercise of the juris- diction of a court of justice. Smith v. Wa- terbury. 54 Conn. 174, 7 Atl. 17 ; Kundolf v. Thalhelmer, 12 N. Y. 596; Gebhard v. Set- tler, 40 Iowa, 156.

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—Cases and controversies. This term, as used in the constitution of the United States, embraces claims or contentions of litigants brought before the court for adjudication by regular proceedings established for the protection or enforcement of rights, or the prevention, redress, or punishment of wrongs ; and whenev- er the claim or contention of a party takes such a form that the judicial power is capable of acting upon it, it has become a case or contro- versy. Interstate Commerce Com'n v. Brim- son, 154 U. S. 447, 14 Sup. Ct. 1125, 38 L. Ed. 1047; Smith v. Adams, 130 U. S. 167, 9 Sup. Ct. 566, 32 L. EM. 895; In re Railway Com'n (C. C.) 32 Fed. 255. But these two terms are to be distinguished ; for there may be a “separable controversy” within a “case,” which may be removed from a state court to a federal court, though the case as a whole is not re- movable. Snow v. Smith (C. C.) 88 Fed. 658.

2. A statement of the facts Involved in a transaction or series of transactions, drawn up in writing In a technical form, for sub- mission to a court or judge for decision or opinion. Under this meaning of the term are Included a “case made” for u motion for new trial, a "case reserved” on the trial of a cause, an “agreed case” for decision with- out trial, etc.

— Case agreed on. A formal written enu- meration of the facts in a case, assented to by both parties as correct and complete, and sub- mitted to the court by their agreement, in order that a decision may be rendered without a trial, upon the court’s conclusions of law upou the facts as stated.— Case for motion. In Eng- lish divorce and probate practice, when a party desires to make a motion, he must file, among other papers, a case for motion, containing an abstract of the proceedings in the suit or action, a statement of the circumstances on which the motion is founded, and the prayer, or nature of the decree or order desired. Browne, Div. 251 ; Browne, Prob. Pr. 295.— Case on appeal. In American practice. Before tbe argument in the appellate court of a case brought there for re- view, the appellant’s counsel prepares a docu- ment or brief, bearing this name, for the infor- mation of the court, detailing the testimony and the proceedings below. In English practice. The "case on appeal” is a printed statement pre- pared by each of the pnrties to an appeal to the house of lords or the privy council, set- ting out methodically the facts which make up his case, with appropriate references to tlic evidence printed in tne “appendix.” The term also denotes a written statement, prepared and transmitted by an inferior court or judge rais- ing a question of law for the opinion of a su- perior court.— Case reserved. A statement in writing of the facts proved on the trial of a cause, drawn up and settled by the attorneys and counsel for the respective parties under the supervision of the judge, for the purpose of having certain points of law, which arose at the trial and could not then be satisfactorily decided, determined upon full argument before the court in banc. This is otherwise called a “special case ;” and it is usual for the parties, where the law of the case is doubtful, to agree that the jury shall find a general verdict for the plaintiff, subject to the opinion of the conrt upon such a case to be made, instead of obtain- ing from the jury a special verdict. 3 Bl. Comm. 378; 3 Steph. Comm. 621; Steph. Pl. 92, 93 ; 1 Burrill, Pr. 242. 463.— Case stated. In practice. An agreement in writing, between a plaintiff and defendant, that the facts in dis- pute between them are as therein agreed upon and set forth. Diehl v.

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Ihrie, 3 Whart. (Pa.) 143. A case agreed upon.— Case to move tor new trial. In practice. A case prepared by the party against whom a verdict has been giv- en, upon which to move the court to set aside the verdict and grant a new trial.

3. A form of action which lies to recover damages for injuries for which the more aucient forms of action will not lie Steph. PL 15. An abbreviated form of the title "tres- pass on the case," q. v. Munal v. Brown (CL C.) 70 Fed. 968.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 2 — 'The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States...; — to Controversies...']**

The entry's 'Cases and controversies' is the constitutional phrase itself: Article III extends the federal judicial power to 'all Cases, in Law and Equity' arising under the Constitution and laws, and to the enumerated 'Controversies.'

Why: Genuine: the entry expounds the constitutional term through case law (Interstate Commerce Com'n v. Brimson); the Article III text is the real source the cases construe, so it illuminates rather than echoes. Quoted bri…

## CASE LAW.

A professional name for the aggregate of reported cases as forming a body of jurisprudence ; or for the law of a particular subject as evidenced or formed by the adjudged cases ; In distinction to statutes and other sources of law.

5e apparatus — Carried into the 5th edition (1979).

## CASH.

Beady money; whatever can be used as money without being converted into another form ; that which circulates ns mon- ey, including bank-bills. Hooper v. Flood, 54 Cal. 221 ; Dazet v. Landry, 21 Nev. 291, 30 Pac. 1064 ; Blair v. Wilson, 28 Grat. (Va.) 165; Havlland v. Chace, 39 Barb. (N. Y.) 284.

— Cash-account. A record, in book-keeping, of all cash transactions; an account of moneys received and expended.— Cash-book. In book- keeping, an account-book in which is kept a record of all cash transactions, or all cash re- ceived and expended. The object of the cash-book is to afford a constant facility to ascer- tain the true state of a man's cash. Pardessus, n. 87.— Cask-note. In England. A bank-note of a provincial bank or of the Bank of England. — Cash-price. A price payable in cash at the time of sale of property, in opposition to a barter or a sale on credit.— Cash value. The cash value of an article or piece of property is the price which it would bring at private sale (as distinguished from a forced or auction sale) the terms of sale requiring the payment of the whole price in ready money, with no deferred payments. Ankeny v. Blakley, 44 Or. 78, 74 Pac. 485 ; State v. Railway Co., 10 Nev. 68 ; Tax Com'ra v. Holliday, 150 Lid; 216, 49 N.

E. 14, 42 L. It. A. 826; Cummings v. Bank, 101 U. S. 162, 25 L. Ed. 903.

CASHIER, ». An officer of a moneyed in- stitution, or commercial house, or bank, who is intrusted with, and whose duty it is to take care of, the cash or money of such institution or

bank.

The cashier of a bank is the executive officer, through whom the whole financial operations of the bank are conducted. He receives and pays out its moneys, collects and pays its debts, and receives and transfers its commercial se- curities. Tellers and other subordinate officers may be appointed, but they are under his di- rection, and are, as it were, the arms by which designated portions of his various functions are discharged. The directors may limit his au- thority as they deem proper, but this would not affect those to whom the limitation was un- known. Merchants' Nat. Bank v. State Nat. Bank, 10 Wall. 650, 19 L. Ed. 100&

CASHIER, v. In military law. To de- prive a military officer of his rank aud office.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Black's defines cash as 'ready money; whatever can be used as money without being converted into another form' — the circulating medium. The hook is hip-hop's definitive statement that money, as that medium, governs all: 'Cash rules everything around me.'

Why: Verbatim-certain iconic lyric; the legal sense (cash as the immediate, circulating medium of exchange) matches the lyric's sense exactly — no force-fit. Added because the line genuinely illuminates cash's power as leg…

## CASHLITE.

An amercement or fine; a mulct

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CASS ARE.

To quash; to render void; to break.

5e apparatus — Carried into the 5th edition (1979).

## CASSATION.

In French law. Annul- ling ; reversal ; breaking the force and va- lidity of a judgment. A decision emanating

from the sovereign authority, by which a de- cree or judgment in the court of last resort is broken or annulled. Merl. Bepert

5e apparatus — Carried into the 5th edition (1979).

## CASSATION, COURT OF.

(Fr. cour de cassation.) The highest court in France ; so termed from possessing the power to quash (casser) the decrees of inferior courts. It is a court of appeal in criminal as well os civil cases.

5e apparatus — Not carried into the 5th edition (1979).

## CASSETUR BILLA.

(Lat That the bUl be quashed.) In practice. The form of the judgment for the defendant on a plea in abatement, where the action was commenced by bill, (billa.) 3 Bl. Comm. 303 ; Steph. PI. 128, 131. The form of an entry made by a plaintiff on the record, after a plea in abate- ment, where he found that the plea could not be confessed and avoided, nor traversed, nor demurred to ; amounting in fact to a discon- tinuance of the action. 2 Archb. Pr. K. B. 8, 236; 1 Tidd, Pr. 683.

5e apparatus — Not carried into the 5th edition (1979).

### CASSETUR BREVE.

(Lat That the writ be quashed.) In practice. The form of the judgment for the defendant on a plea in abatement, where the action was commenced by original writ, (brave.) 3 Bl. Comm. 303; Steph. PI. 107, 109.

CASSOCK, or CA8SULA. A garment worn by a priest.

CAST, v. In old English practice. To allege, offer, or present; to proffer by way of excuse, (as to “cast an essoin.”)

This word is now used as a popular, ra- ther than a technical, term, in the sense of to overcome, overthrow, or defeat in a civil action at law.

—Cast away. To cast away a ship is to do such an act upon or in regard to it as causes it to perish or be lost, so as to be irrecoverable by ordinary means. The term Is synonymous with “destroy," which means to unfit a vessel for service beyond the hope of recovery by ordinary means. U. S. v. Johns, 26 Fed. Cas. 616 ; U. S. v. Vanranst, 28 Fed. Cas. 360.

CAST, p. p. Overthrown, worsted, or de- feated in an action.

CARTEL, or CASTLE. A fortress in a town ; the principal mansion of a nobleman. 3 Inst. 31.

5e apparatus — Not carried into the 5th edition (1979).

## O

### OASTELLAIN.

In old English law. The lord, owner, or captain of a castle ; the con- stable of a fortified house; a person having the custody of one of the crown mansions; an officer of the forest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## C

### CASTELLAHUS.

A castellain ; the keeper or constable of a castle. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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## CASTELLARIUM, OASTELLATUS.

In old English law. The precinct or juris- diction of a castle. Blount

OABTEIAOBtlX OPERATIO. In Sax- on and old English law. Castle work. Serv- ice and labor done by Inferior tenants for the building and upholding castles and pub- lic places of defense. One of the three -nec- essary charges, (trinoda necessittu,) to which all lands among the Saxons were expressly subject. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CASTIGATORY.

An engine used to punish women who have been convicted of being common scolds. It is sometimes called the "trebucket," “tumbrel,” “ducking-stool,” or “cucking-stool.” U. S. v. Royall, 27 Fed. Cas. 907.

5e apparatus — Carried into the 5th edition (1979).

## CASTING.

Offering ; alleging by way of excuse. Casting an essoin was alleging an excuse for not appearing in court to answer an action. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## CASTING VOTE.

Where the votes of a deliberative assembly or legislative body are equally divided on any question or motion, it is the privilege of the presiding offi- cer to cast one vote (if otherwise he would not be entitled to any vote) on either side, or to cast one additional vote, if he has al- ready voted as a member of the body. This is called the “casting vote."

By the common law, a casting vote sometimes signifies the single vote of a person who never votes; but, in the case of an equality, some- times the double vote of a person who first votes with the rest, and then, upon an equality, cre- ates a majority by giving a second vote. People v. Church of Atonement, 48 Barb. (N. Y.) 606 ; Brown v. Foster, 88 Me. 49, 33 Atl. 662, 31 I*

R. A. 116: Wooster v. Mullins, 64 Conn. 340, 30 Atl. 144, 25 L. R. A. 694.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 3, cl. 4 — 'The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided']**

The presiding officer's casting vote on an equal division is constitutionally embodied in the Vice President's Senate tie-break: he has no vote unless the Senate is equally divided.

Why: Genuine: the entry defines the casting vote as the presiding officer's vote on an equal division; the clause is the real, highest-profile instantiation of exactly that rule. Quoted briefly and exactly.

## CASTLEGUARD.

In feudal law. An imposition anciently laid upon such persons as lived within a certain distance of any castle, towards the maintenance bf such as watched and warded the castle.

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—Cutlwiiard rents. In old English law. Rents paid by those that dwelt within the pre- cincts of a castle, towards the maintenance of such as watched and warded it.

5e apparatus — Carried into the 5th edition (1979).

**CASTRENSIS.**

In the Roman law. Re- lating to the camp or military service.

Castrense pecuHum, a portion of property which a son acquired in war, or from his connection with the camp. Dig. 49, 17.

5e apparatus — Not carried into the 5th edition (1979).

# G

**GASTRITIC.**

Lab In Roman law. A

camp.

In old! English law. A castle. Bract, fol. 69b. A castle, including a manor. 4 Coke, 88.

5e apparatus — Not carried into the 5th edition (1979).

# C

**CASE CONSIMEU.**

In old English law. A writ of entry, granted where tenant by the curtesy, or tenant for life, alienated in fee, or in tall, or for another’s life, which was brought by him in reversion against the party to whom such tenant so alienated to

his prejudice, and in the tenant's life-time. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OASU PROVISO.**

A writ of entry framed under the provisions of the statute of Gloucester, (6 Edw. I.,) c. 7, which lay for the benefit of the reversioner when a ten- ant in dower aliened in fee or for life.

5e apparatus — Not carried into the 5th edition (1979).

# C

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## CASUAL.

That which happens accident- ally, or is brought about by causes un- known; fortuitous; the result of chance. Lewis v. Lofley, 92 Ga. 804, 19 S. E. 57.

—Casual ejector. In practice. The nominal defendant in an action of ejectment; so called because, by a fiction of law peculiar to that ac- tion, he is supposed to come catually or by ac- cident upon the premises, and to, turn out or eject the lawful possessor. 3 Bl. Comm. 203; 3 Steph. Comm. 670 ; French v. Robb, 67 N. J. Law. 260, 51 Atl. 509, 57 L. R. A. 956, 91 Am. St. Rep. 433. — Casual evidence. A phrase used to denote (in contradistinction to “preap- pointed evidence”) all such evidence as happens to be adducible of a fact or event, but which was not prescribed by statute or otherwise ar- ranged beforehand to be the evidence of the fact or event. Brown.— Casual pauper. A poor person who, in England, applies for relief in a parish other than that of his settlement. The ward in the work-house to which they are admitted is called the “casual ward.”— Casual poor. In English law. Those who are not set- tled in a parish. Such poor persons as are suddenly taken sick, or meet with some acci- dent, when away from home, and who are thus providentially thrown upon the charities of those among whom they happen to be. Force v. Haines, 17 N. J. taw, 405.

5e apparatus — Not carried into the 5th edition (1979).

## CASUALTY.

Inevitable accident ; an event not to be foreseen or guarded against. A loss from such an event or cause; as by fire, shipwreck, lightning, etc. Story, Bailm. $ 240; Gill v. Fugate, 117 Ky. 257, 78 S. W. 191 ; McCarty v. Railroad Co., 30 Pa. 251 ; Railroad Co. v. Car Co., 139 D. S. 79, 11 Sup. Ct. 490, 35 L. Ed. 97; Ennis v. Bldg. Ass'n, 102 Iowa, 520, 71 N. W. 426; Anthony v. Karbach, 64 Neb. 509, 90 N. W. 243, 97 Am. St. Rep. 662.

—Casualties of superiority. In Scotch law. Payments from an inferior to a superior, that is, from a tenant to his lord, which arise upon uncertain events, as opposed to the pay- ment of rent at fixed and stated times. Bell. —Casualties of wards. In Scotch law. The mails and duties due to the superior in ward- holdings.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:13, KJV]**

And if a man lie not in wait, but God deliver him into his hand; then I will appoint thee a place whither he shall flee.

Why: Casualty is inevitable accident — an event not foreseen or guarded against; the verse is the biblical law separating the accidental slayer from the murderer, genuinely establishing accident as a legal category.

## CASUS.

Lat. Chance; accident; an event; a case; a case contemplated.

—Casus belli. An occurrence giving rise to or justifying war.— Casus foederis. In inter- national law. The case of the treaty. The par- ticular event or situation contemplated by the treaty, or stipulated for, or which comes within its terms. In commercial law. The case or

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event contemplated by the parties to an in- dividual contract or stipulated fqr by it, or coming within its terms.— Casus fortuitus. An inevitable accident, a chance occurrence, or fortuitous event. A loss happening in spite of all human effort and sagacity. 3 Kent. Comm. 217, 300; Whart. Neg. 81 113, 553. The Majestic. 166 U. S. 375, 17 Sup. Ct. 597. 41 L. Kd. 1039. —Casus major. In the civil law. A casual- ty ; an extraordinary casualty, as fire, ship-



wreck, etc. Dig. 44, 7, 1, 4. — Casus omtuua. A cnee omitted ; an event or contingency for which no provision is made ; particularly a case not provided for by the statute on the general subject, and which is therefore left to be gov- erned by the common law.

Casus fortuitus non ost sperandus, et nemo tenetnr devinare. A fortuitous

event is not to be expected, and no one Is bound to foresee it 4 Coke, 6G.

Casns fortuitus non est supponendul.

A fortuitous event is not to be presumed. Hardr. 82, arg.

Casus omissus et oblivloni datus dis- position! juris communis rellnqnitur. A

case omitted and given to oblivion (forgot- ten) is left to the disposal of the common law. 5 Coke, 38. A particular case, left un- provided for by statute, must be disposed of according to the law as it existed prior to such statute. Broom, Max.’ 40.

Casus omissus pro omisso habendus est. A case omitted is to be held as (Inten- tionally) omitted. Tray. Lat Max. 67.

5e apparatus — Not carried into the 5th edition (1979).

## CAT.

An instrument with which crimi- nals are flogged. It consists of nine lashes of whip-cord, tied on to a wooden handle.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Herman Melville, White-Jacket, 1850]**

(paraphrase) Aboard a U.S. man-of-war, sailors are flogged with the cat-o'-nine-tails while the narrator builds the case for abolishing naval flogging outright. (paraphrase)

Why: The entry defines the cat as the nine-lashed flogging instrument. Melville's novel famously depicts naval flogging with the cat and argues for its abolition — precisely on point. Paraphrase only.

## CATALLA.

In old English Law. Chat- tels. The word among the Normans prima- rily signified only beasts of husbandry, or, as they are still called, “cattle,” but, in a secondary sense, the term was applied to all movables in general, and not only to these, hut to whatever was not a fief or feud. Wharton.

— Catallu otiose. Dead goods or chattels, as distinguished from animals. Idle cattle, that is, such as were not used for working, as distin-' guished from beasts of the plow ; called also animalia otiosa. Bract, fols. 217, 2176; 3 Bl. Comm. 9.

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Catallu juste possessa amitti non pos- sunt. Chattels justly possessed cannot be losj. Jeuk. Cent. 28.

Catalla reputantur inter minima in

lege. Chattels are considered in law among the least things. Jenk. Cent 52.

5e apparatus — Not carried into the 5th edition (1979).

### CATALLIS OAPTIS NOMINE DI8- / TRICTIONI8.

An obsolete writ that lay where a house was within a borough, for rent issuing out of the same, and which war- ranted the taking of doors, windows, etc., by way of distress.

5e apparatus — Not carried into the 5th edition (1979).

## O

### OATALLI8 REDDENDIS.

For the re- turn of the chattels ; an obsolete writ that lay where goods delivered to a man to keep till a certain day were not upon demand re- delivered at the day. Reg. Orig. 39.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:10, KJV]**

If a man deliver unto his neighbour an ass, or an ox, or a sheep, or any beast, to keep; and it die, or be hurt, or driven away, no man seeing it:

Why: The writ lies for the return of chattels delivered to a man to keep; the verse opens the biblical law of deposit — goods delivered to a neighbour to keep — genuinely illuminating the bailment behind the writ.

## C

### CAT ALBUM.

A chattel. Most frequent- ly used in the plural form, catalla, (g. v .)

5e apparatus — Not carried into the 5th edition (1979).

### CATALS.

Goods and chattels. See Ca- talla.

5e apparatus — Not carried into the 5th edition (1979).

## O

### OATANEUS.

A tenant in capite. A tenant holding immediately of the crown. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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## OATASCOPUS.

An old name for an archdeacon.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CATCHING BARGAIN.

See Baboain

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Honore de Balzac, Gobseck, 1830]**

(paraphrase) The usurer Gobseck advances money to spendthrift heirs against their expectancies, buying their futures at a fraction of their worth. (paraphrase)

Why: The entry cross-refers to Bargain; 'catching bargain' is the moneylender's undervalue bargain with an expectant heir. Balzac's Gobseck is the archetypal fictional usurer exploiting heirs. Paraphrase only.

## CATCHINGS.

Things caught, and in the possession, custody, power, and dominion of the party, with a present capacity to use them for his own purposes. The term includes blubber, dr pieces of whale flesh cut from the whale, and stowed on or under the deck of a ship. A policy of Insurance upon out- fits, and cntchings substituted for the outfits, in a whaling voyage, protects the blubber. Rogers v. Insurance Co., 1 Story, 603; Fed. Cas. No. 12.016; 4 Law Rep. 297.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:28, KJV]**

and have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth.

Why: Catchings are things caught into a party's possession, custody, power, and dominion; the verse grants dominion over every living thing that moves — the root of capture-by-dominion. Flagged: 'And God said unto them' —...

## CATCHLAND.

Land in Norfolk, so call- ed because it is not known to what parish it belongs, and the minister who first seizes the tithes of it, by right of preoccupation, en- joys them for that year. Cowell.

. CATCHPOLL. A name formerly given to a sheriff’s deputy, or to a constable, or other officer whose duty it is to arrest per- sons. He was a sort of serjeant The word is not now in use as an official desiguation. Mlnshew.

5e apparatus — Not carried into the 5th edition (1979).

## CATER COUSIN.

(From Fr. Quatre- cousin.) A cousin in the fourth degree ; hence any distant or remote relative.

5e apparatus — Carried into the 5th edition (1979).

## CATHEDRAL.

In English ecclesiastical law. The church of the bishop of the dio- cese, in which is his cathedra, or throne, and his special jurisdiction ; in that respect the principal church of the diocese.

—Cathedral preferments. In English ec- clesiastical law. All deaneries, archdeaconries, and canonries, and generally all dignities and offices in any cathedral or collegiate church, be- low the rank of a bishop.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Ken Follett, The Pillars of the Earth, 1989]**

(paraphrase) Generations of builders, monks, and townspeople raise a Gothic cathedral stone by stone — the bishop's church as a community's life's work. (paraphrase)

Why: The entry defines the cathedral as the bishop's church, seat of his jurisdiction. The novel is the modern canonical fiction of the cathedral as an institution people pour generations into. Paraphrase only.

# O

## OATHEDRATIO.

In English ecclesias- tical law. A sum of 2s. paid to the bishop by tlie Inferior clergy; but from its being usually paid at the bishop’s synod, or visita- tion, it is commonly named synodals. Whar- ton.

CATHOLIC CREDITOR In Scotch law. A creditor whose debt is secured on nil or several distinct parts of the debtor's prop- erty. Bell.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CATHOLIC EMANCIPATION AOT.

The statute of 10 Geo. IV. c. 7, by which Ro- man Catholics were restored, in general, to the full enjoyment of all civil rights, except that of holding ecclesiastical offices, and cer- tain high appointments in the state. 3 Steph. Comm. 109.

5e apparatus — Not carried into the 5th edition (1979).

## CATONIANA REGULA.

In Roman law. The rule which la commonly expressed In the maxim, Quod ab initio non

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valet tractu temporis non convalebit, meaning that what is at the beginning void by reason of some technical (or other) legal defect will not be- come valid merely by length of time. The rule applied to the institution of hairedes, the bequest of legacies, and such like. The rule is not without its application also in En- glish law; e. g., a married woman’s will (be- ing void when made) is not made valid mere- ly because she lives to become a widow. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CATTLE.

A term which Includes the domestic animals generally; all the animals used by man for labor or food.

Animals of the bovine genus. In a wider sense, all domestic animals used by man for labor or food, including sheep and hogs. Ma- thews v. State, 39 Tex. Cr. R. 553, 47 S. W. 647 ; State v. Brookhouse, 10 Wash. 87, 38 Pac. 862 ; State v. Credle, 91 N. C. 640 ; State v. Groves, 119 N. C. 822, 25 S. E. 819; First Nat Bank v. Home Sav. Bank, 21 Wall. 299, 22 L. Ed. 560 ; U. S. v. Mattock, 26 Fed. Cas. 1208.

-Cattle-gate. In English law. A right to pasture cattle in the land of another. It is a distinct and several interest in the land, passing by lease and release. 13 East, 159 ; 5 Taunt. 811.— Cattle-guard. A device to prevent cat- tle from straying along a railroad-track at a highway-crossing. Heskett v. Railway Co., 61 Iowa. 467, 10 N. W. 525 ; Railway Co. v. Man- son. 31 Kan. 337, 2 Pac. 800.

CAUDA TERRA!. A land’s end, or the bottom of a ridge in arable land. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 50:10, KJV]**

For every beast of the forest is mine, and the cattle upon a thousand hills.

Why: Cattle are defined as the class of domestic animals used for labor and food — property; the verse treats cattle as ownable property under divine ownership, genuinely illuminating the property concept. Flag off: Psalms…

## CAULCEI8.

Highroads or ways pitched with flint or other stones.

5e apparatus — Not carried into the 5th edition (1979).

## CAUPO.

In the civil law. An innkeeper. Dig. 4, 9, 4, 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:34-35, KJV]**

and brought him to an inn, and took care of him. And on the morrow when he departed, he took out two pence, and gave them to the host, and said unto him, Take care of him; and whatsoever thou spendest more, when I come again, I will repay thee.

Why: A caupo is an innkeeper; the verses show the host receiving the wounded traveler as a charge, with payment and the promise of more — the innkeeper's office made visible. Flagged per red-letter convention: parables are…

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## CAUPONA.

In the civil law. An inn or tavern. Inst. 4, 5, 3.

5e apparatus — Not carried into the 5th edition (1979).

## CAUPONES.

In the civil law. Innkeep- ers. Dig. 4, 9 ; Id. 47, 5 ; Story, Ag. § 458.

5e apparatus — Not carried into the 5th edition (1979).

## CAUR8INES.

Italian merchants who came into England in the reign of Henry III., where they established themselves as money lenders, but were soon expelled for their usury and extortion. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CAUCUS.

A meeting of the legal voters of any political party assembled for the pur- pose of choosing delegates or for the nomina- tion of candidates for office. Pub. St. N. H.

1901, p. 140, c. 78, § 1; Rev. Laws Mass.

1902, p. 104. c. 11, § 1.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSA.

Lat. 1. A cause, reason, occa- sion, motive, or inducement

2. In the eivll law and in old English law. The word signified a source, ground, Bl.Law Dict.(2d Ed.)— 12

or mode of acquiring property ; hence a title ; one’s title to property. Thus. “Titulus est justa causa possidcndi id quod nostrum est;" title is the lawful ground of possessing that which is ours. 8 Coke, 153. See Mack- eld. Rom. Law, §g 242, 283.

3. A condition; a consideration; motive for performing a juristic act. Used of con- tracts, and found in this sense in the Scotch law also. Bell.

4. In old English law. A cause; a suit or action pending. Causa testamcntaria. a testamentary cause. Causa matrimonialis, a matrimonial cause. Bract fol. 61.

5. In old European law. Any movable thing or article of property.

6. Used with the force of a preposition, it means by virtue of, on account of. Also with reference to, in contemplation of. Causa mortis, in anticipation of death.

—Causa oausans. The immediate cause ; the last link in the chain of causation.— Causa data et non secuta. In the civil law. Con- sideration given and not followed, that is, by the event upon which it was given. The name of an action by which a thing given in the view of a certain event was reclaimed if that event did not take place. Dig. 12, 4 ; Cod. 4, 6. f- Causa hospitandl. For the purpose of be- ing entertained as a guest. 4 Maule & S. 310.

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—Causa Jactitationis maritagil. A form of action- which anciently lay against a party who boasted or gave out that he or she was married to the plaintiff, whereby a common reputation of their marriage might ensue. 3 Bl. Comm. 93.— Causa matrimonii prseloouti. A writ lying where a woman has given lands to a man in fee-simple with the intention that he shall marry her, and he refuses so to do within a reasonable time, upon suitable request. Cow- ell. Now obsolete. 3 Bl. Comm. 183, note. — Causa mortis. In contemplation of approaching death. In view of death. Commonly occurring in the phrase donatio causa mortis, (q. v.) — Causa patet. The reason is open, ob- vious, plain, clear, or manifest. A common expression in old writers. Perk. c. 1, 11, 14,

97.— Causa proximo. The immediate, nearest, or latest cause.— Causa rol. In the civil law. The accessions, appurtenances, or fruits of a thin§; comprehending all that the claimant of a principal thing can demand from a defendant in addition thereto., and especially what he would have had, if the tiling had not been with- held from him. Inst. 4, 17, 3; Mackeld. Rom.

I -aw, § 166.— Causa remota. A remote or me- diate cause; a cause operating indirectly by the intervention of other causes.— Causa scientise patet. The reason of the knowledge is evident A technical phrase in Scotch practice, used in depositions of witnesses.— Causa sine qua non. A necessary or inevitable cause ; a cause without which the effect in question could not have happened. Hayes v. Railroad Co., Ill U.

S. 228, 4 Sup. Ct. 369, 28 L. Ed. 410.— Causa turpis. A base (immoral or illegal) cause oi consideration.

Causa eausae est causa eausati. The

cause of a cause is the cause of the thing caused. 12 Mod. 639. The cause of the cause Is to be considered as the cause of the effect also.

Causa causantis, eausa est eausati.

The cause of the thing causing is the caust

of the effect 4 Camp. 284; Marble v. City of Worcester, 4 Gray (Mass.) 398.

Causa eoolesise public!* mqniparaturt ct inmma cst ratio qua pro religion* facit. The cause of the church Is equal to public cause; and paramount Is the reason which makes for religion. Co. Lltt 341.

Cansa et orlgo eat materia negotii.

The cause and origin Is the substance of the thing; the cause and origin of a thing are a material part of it. The law regards the original act 1 Coke, 99.

Canaa proxima, non remote, spectator.

The Immediate, not the remote, cause. Is looked at, or considered. 12 East, 648; 3 Kent Comm. 302; Story, Ballm. g 515; Bac, Max. reg. 1.

Cansa raga et incerta non eat cansa rationabilis. 5 Coke, 57. A vague and un- certain cause Is not a reasonable cause.

Cansa dotia, vita, libertatia, flaci snnt inter f avorabilia in lege. Causes of dow- er, life,

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liberty, revenue, are among the things favored In law. Co. Lltt 341.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSAM NOBIS SIGNIFICES / QUARE.

A writ addressed to a mayor of a town, etc., who was by the king's writ com- manded to give seisin of lands to the king’s grantee, on his delaying to do it requiring him to show cause why he so delayed the per- formance of his duty. Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSABB.

In the civil and old En- glish law. To be engaged In a suit; to liti- gate ; to conduct a cause.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSATOR.

In old European law. One who manages or litigates another’s cause Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSE.

That which' produces an effect ; whatever moves, Impels, or leads. The ori- gin or foundation of a thing, as of a suit or action; a ground of 'action. Corning v. Mc- Cullough, 1 N. Y. 47, 49 Am. Dec. 287; State v. Dougherty, 4 Or. 203.

The consideration of a contract, that Is, the Inducement to it, or motive of the con- tracting party for entering Into It, Is, in the civil and Scotch law, called the “cause.”

The civilians use the term “cause,” in relation to obligations, in the same sense as the word “consideration” is used in the jurisprudence of England and the United States. It means the motive, the inducement to the agreement,— id quod inducet ad contrahcndum. In contracts of mutual interest, the cause of the engagement Is the thing given or done, or engaged to be given or done, or the risk incurred by one of the par- ties. Mouton v. Noble, 1 La. Ann. 192.

In pleading. Reason; motive; matter of excuse or Justification.

In practice. A suit, litigation, or action. Any question, civil or criminal, contested before a court of justice.

Cause imports a judicial proceeding entire, and is nearly synonymous with its in Latin, or suit in English. Although allied to the word “case,” it differs from it in the application of its meaning. A cause is pending, postponed, ap- pealed, gained, lost, etc. ; whereas a case is made, rested, argued, decided, etc. Case is of a more limited signification, importing a collection of facts, with the conclusion of law thereon. Both 'terms may be used with propriety in the same sentence; e. a., on the trial of the caute, the plaintiff introduced certain evidence, and there rested his cate. See Shirts v. Irons, 47 Ind. 445 ; Blyew v. U. S., 13 Wall. 581, 20 L. Ed. 638; Erwin v. U. S., 37 Fed. 470, 2 L R.

A. 229.

A distinction is sometimes taken between “cause" and "action.” Burrill observes that a cause is not, like an action or suit, said to be commenced, nor is an action, like a cause, said to be tried. But, if there is any substantial dif- ference between these terms, it must lie in the fact that “action” refers more peculiarly to the legal procedure of a controversy; “cause” to its metits or the state of facts involved. Thus, we cannot say “the cause should have been replev- in.” Nor would it be correct to say “the plain- tiff pleaded his own action."

As to "Probable Cause’’ and “Proximate Cause,” see those titles. As to challenge “for cause,” see "Challenge.”

5e apparatus — Not carried into the 5th edition (1979).

## CAUSE-BOOKS.

Books kept In the cen- tral office of fhe English supreme court, in which are entered all writs of summons Issued in the office. Rules of Court, v 8.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSE UST.

In English practice. A printed roll of actions, to be tried in the order of their entry, with the names of the solicitors for each litigant Similar to the calendar of causes, or docket used in Amer- ican courts.

5e apparatus — Not carried into the 5th edition (1979).

## CAUSE OF ACTION.

Matter for which an action may be brought. The ground on which an action may be sustained. The right to bring a suit

Cause of action ia properly the ground on which an action can be maintained; as when we say tbat such a person has no cause of ac- tion. But the phrase is o.ten used to signify the matter of the complaint or claim on which a given action is in fact grounded, whether or not legally maintainable. Mozley A Whitley.

It sometimes means a person having a right of action. Thus, where a legacy is left to a mar- ried woman, and she and her husband bring an action to recover it, she is called in the old 1 >ooks the “meritorious cause of action.” 1 H. Bl. 108.

The term is synonymous with right of action, right of recovery. Graham v. Scripture, 26 How. Tree. (N. Y.) 501.

Cause of action is not synonymous with chose in action; the latter includes debts, etc., not due, and even stocks. Bank of Commerce v. Rutland & W. R. Co., 10 How. Prac. (N. Y.) 1.

CAUSES oElEbRES. Celebrated cases. A work containing reports of the decisions of Interest and Importance In French courts in the seventeenth and eighteenth centuries.

Secondarily a single trial or decision is

often called a “came cilHre,” when It Is re- markable on account of the parties involved or the unusual, interesting, or sensational character of the facts.

5e apparatus — Carried into the 5th edition (1979).

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# G

## GAUSEDIGUS.

In the civil law. A plead- er; one who argued a cause ore fen us.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CAUTELA.

Lat Care; caution; vigi- lance ; prevision.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 22:3, KJV]**

A prudent man foreseeth the evil, and hideth himself: but the simple pass on, and are punished.

Why: Cautela is care, caution, vigilance, prevision; the proverb makes foresight the ground of caution — genuinely illuminating prevision as the legal mind's posture. Flag off: wisdom literature, not deity speech.

## CATJTIO.

In the civil and French law.

Security given for the performance of any thing ; bail ; a bond or undertaking by way of surety. Also the person who becomes a surety.

In Scotch law. A pledge, bond, or other security for the performance of an obligation, or completion of the satisfaction to be ob- tained by a judicial process. Bell.

— Cantio fldejussorla. Security by means of bonds or pledges entered into by third parties.' Du Cange. — Caatio Montana. Security given] by an heir or legatee, in order to obtain imme-; dlate possession of the inheritance or legacy, binding him and his surety for his observance of a condition annexed to tne bequest, where the act which is the object of the condition is one which he must -avoid committing during bis whole life, s. g., that he will never marry, never leave the country, never engage in a particular trade, etc. See Mackeld. Rom. Law, f 705.— Cantlo picnoratitia. Security given by pledge, or deposit, as plate, money, or other goods. — Cautio pro expensis. Security for costs, charges, or expenses.— Caatio usnfrne- taaxia. Security, which tenants for life give, to preserve the property rented free from waste ana injuiy. Eisk. Inst. 2, 9, 59.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: Cautio (headword OCR'd as CATJTIO) is security given by way of surety, and the surety himself; the proverb is the biblical word on suretyship — the exact concept. Flag off: wisdom literature, not deity speech.

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## CAUTION.

In Scotch law, and in admi- ralty law. Surety; security; bail; an un- dertaking by way of surety. 6. Mod. 162.- See Cautio.

—Caution Juratory. In Scotch law. Securi- ty given by oath. That which a suspender swears is the best he can afford in order to ob- tain a suspension. Ersk. Pract 4, 3, 6.

5e apparatus — Carried into the 5th edition (1979).

## CAUTIONARY.

In Scotch law. An Instrument in which a person binds himself as surety for another.

5e apparatus — Not carried into the 5th edition (1979).

## CAUTIONE AD MIT TEND A.

In English ecclesiastical law. A writ that lies against a bishop who holds an excommuni- cated person in prison for contempt, not- withstanding he offers sufficient caution or security to obey the orders and command- ment of the church for the future. Reg. Orig. 66 ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CAUTIONER.

In Scotch law. A surety ; a bondsman. One who binds himself in a bond with the principal for greater security. He is still a cautioner whether the bond be to pay a debt, or whether he undertake to produce the person of the party for whom he is bound. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## CAUTIONNEMENT.

In French law. The same as becoming surety in English law.

5e apparatus — Not carried into the 5th edition (1979).

## CAUTIONRY.

In Scotch law. Surety- ship.

5e apparatus — Not carried into the 5th edition (1979).

## CAVEAT.

Lat. Let him beware. A for- mal notice or warning given by a party in- terested to a court, Judge, or ministerial offi- cer against the performance of certain acts within his power and jurisdiction. This pro- cess may be used in the proper courts to pre- vent (temporarily or provisionally) the prov- ing of a will or the grant of administration, or to arrest the enrollment of a decree in chancery when the party Intends to take an appeal, to prevent the grant of letters patent, etc. It is also used, in the American prac- tice, as a kind of equitable process, to stay the granting of a patent for lauds. Wilson v. Gaston, 92 Pa. 207; Slocum v. Grandin, 33

N. J. Eq. 485; Ex parte Crafts, 28 S. C. 281, 6 S. E. 718; In re Miller’s Estate, 166 Pa. 97, 81 Atl. 58.

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In patent law. A caveat is a formal written notice given to the officers of the pat- ent-office, requiring them to refuse letters patent on a particular Invention or device to any other person, until the party filing the caveat (called the “caveator”) shall have an opportunity to establish his claim to priority of invention.

- CAVEAT ACTOR. Let the doer, or ac- tor, beware.

5e apparatus — Not carried into the 5th edition (1979).

## CAVEAT EMPTOR.

Let the buyer take care. This maxim summarizes the rule that the purchaser of an article must examine, judge, and test it for himself, being bound to discover any obvious defects or imperfec- tions. Miller v. Tiffany, 1 Wall. 309, 17 L. Ed. 540 ; Barnard v. Kellogg, 10 Wall. 388, 19

L. Ed. 987 ; Slaughter v. Gerson, 13 Wall. 383, 20 L. Ed. 627 ; Hargous v. Stone, 5 N. Y. 82; Wissler v. Craig, 80 Va. 32; Wright v. Hart, 18 Wend. (N. Y.) 453.

Caveat emptor, qui ignorare non debnlt

quod Jus alienum emit. Hob. 99. Let a purchaser beware, who ought not to be ig- norant that be is purchasing the rights of an- other.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-314 — implied warranty of merchantability]**

The entry states the common-law rule in full; its great modern displacement is the implied warranty of merchantability, which attaches to a sale of goods by a merchant unless properly excluded or modified.

Why: Genuine: the entry gives the old rule (buyer beware) with its Supreme Court authorities; the UCC section is the real statute that now limits it in goods transactions, supplying what the entry omits rather than echoing…

**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: Caveat emptor is the buyer's duty to examine, judge, and test for himself; the proverb shows the buyer doing exactly that — disparaging the goods before purchase — the biblical portrait of the maxim's duty. Flag off:…

## CAVEAT VENDITOR.

In Roman law.

A maxim, or rule, casting the responsibility for defects or deficiencies upon the seller of goods, and expressing the exact opposite of the common law rule of caveat emptor. See Wright v. Hart, 18 Wend. (N. Y.) 449.

In Enclish and American jurispru- dence. Caveat venditor is sometimes used as expressing, in a rough way, the rule which governs all those cases of sales to which caveat emptor does not apply.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: Caveat venditor casts responsibility for defects on the seller; the proverb condemns the seller's false measure — the biblical root of seller responsibility for what he sells. Flag off: wisdom literature.

## CAVEAT VIATOR.

Let the traveler be- ware. This phrase has been used as a concise expression of the duty of a traveler on the highway to use due care to detect and avoid

0EN8ARII

defects In the way. Cornwell v. Com’rs, 10 Exch. 771, 774.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 10:16, KJV]**

Behold, I send you forth as sheep in the midst of wolves: be ye therefore wise as serpents, and harmless as doves.

Why: Caveat viator is the traveler's duty of due care on the road; the verse is Jesus' own charge to his travelers to beware — wise as serpents on the way. Flagged: Jesus' verbatim words.

## CAVEATOR.

One who flies a caveat.

Cavendnm eit ft fragmeatll. Beware of fragments. Bac. Aph. 26.

5e apparatus — Not carried into the 5th edition (1979).

## CAVERS.

Eat In the civil and common law. To take care; to exercise caution; to take care or provide for; to provide by law; to provide against; to forbid by law; to give security ; to give caution or security on arrest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CAVERS.

Persons stealing ore from mines in Derbyshire, punishable In the bergh- luote or miners’ court ; also officers belong- ing to the same mines. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CAVA.

In old English law. A quay, kay, key, or wharf. Cowell.

CAVAGItTM. In old English law. Cay- age or kaynge ; a toll or duty anciently paid for landing goods at a quay or wharf. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

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# G

## GEAR.

A bargain ; anything for sale ; a chattel ; also cattle, as being the usual medi- um of barter. Sometimes used Instead of ceapgild, (?. v.)

5e apparatus — Not carried into the 5th edition (1979).

# C

## CEAPGILD.

Payment or forfeiture of an animal. An ancient species of forfeiture.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:36, KJV]**

Or if it be known that the ox hath used to push in time past, and his owner hath not kept him in; he shall surely pay ox for ox; and the dead shall be his own.

Why: Ceapgild is payment or forfeiture of an animal; the verse imposes ox-for-ox as legal payment — the animal-forfeiture institution itself. Flagged: covenant code, God's spoken law.

## CEDE.

To yield up ; to assign ; to grant. Generally used to designate the transfer of territory from one government to another. Goetz v. United States (C. C.) 103 Fed. 72; Baltimore v. Turnpike Road, 80 Md. 533, 31 Atl. 420; Somers v. Pierson, 16 N. J. Law, 181.

5e apparatus — Carried into the 5th edition (1979).

## CEDENT.

In Scotch law. An assignor. One who transfers a chose In action.

5e apparatus — Not carried into the 5th edition (1979).

## CEDO.

I grant. The word ordinarily used in Mexican conveyances to pass title to lands. Mulford v. Le Franc, 26 Cal. 88, 108.

CEDUXiA. In old English law. A

schedule.

In Spanish law. An act under private signature, by which a debtor admits the amount of the debt, and binds himself to dis- charge the same on a specified day or on de- mand.

Also the notice or citation affixed to the door of a fugitive criminal requiring him to appear before the court where the accusation is pending.

5e apparatus — Not carried into the 5th edition (1979).

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### CEDULE.

In French lnw. The technic- al name of an act under private signature. Campbell v. Nicholson, 3 La. Ann. 458.

5e apparatus — Not carried into the 5th edition (1979).

# G

### GELATION.

In medical jurisprudence. Concealment of pregnancy or delivery.

5e apparatus — Not carried into the 5th edition (1979).

# O

### OELDRA.

In old English law, a chal- dron. In old Scotch law, a measure of grain, otherwise called a “chalder.” See 1 Karnes, Eq. 213.

5e apparatus — Not carried into the 5th edition (1979).

# C

### CELEBRATION OF MARRIAGE.

The formal act by which a man aud woman take each other for husband and wife, accord- ing to law ; the solemnization of a marriage. The term Is usually applied to a marriage cer- emony attended with ecclesiastical functions. See Pearson v. Ilowey, 11 N. J. Law, 19.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The entry defines the formal act of taking husband and wife; the verse is the foundational statement of the marriage union — one flesh — genuinely illuminating the institution. Flag off: narrator's voice in Genesis (b...

### CELIBACY.

The condition or state of life of an unmarried person.

0ELLERARID8. A butler in a monas- tery ; sometimes in universities called “man- ciple” or “caterer.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Matthew 19:12, KJV]**

For there are some eunuchs, which were so born from their mother's womb: and there are some eunuchs, which were made eunuchs of men: and there be eunuchs, which have made themselves eunuchs for the kingdom of heaven's sake. He that is able to receive it, let him receive it.

Why: Celibacy is the unmarried state; the verse is the classic text for voluntary celibacy — those who make themselves eunuchs for the kingdom of heaven's sake. Flagged: Jesus' verbatim words.

## CEMETERY.

A place of burial, differ- ing from a churchyard by its locality and In- cidents.— by Its locality, as it is separate and apart from any sacred building used for the performance of divine service; by its Inci- dents that. Inasmuch ns no vault or burying- plaee in an ordinary churchyard can be pur- chased for a perpetuity. In a cemetery a per- manent burial place can be obtained. Whar- ton. See Winters v. State, 9 Iud. 174; Ceme- tery Ass’n v. Board of Assessors. 37 La. Ann. 35; Jenkins v. Andover, 103 Mass. 104: Cem- etery Ass’n v. New Haven, 43 Conn. 243, 21 Am. Rep. 643.

Six or more human bodies being burled at one place constitutes the place a cemetery. Pol. Code Cal. § 3106.

5e apparatus — Carried into the 5th edition (1979).

## CENDUUE.

Small pieces of wood laid in the form of tiles to cover the roof of a house ; shingles. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# O

## OENEGILD.

In Saxon law. An expia- tory mulct or fine paid to the relations of a murdered person by the murderer or his re- lations. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

---

**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: Cenegild (headword OCR'd as OENEGILD) is the expiatory fine paid to the murdered person's kin; the verse addresses exactly this payment — and forbids it, refusing the ransom the Saxon law allowed. The contradiction is…

## OENELUE.

In old records. Acorns.

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# C

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**CENNINGA.**

A notice given by a buyer to a seller that the things which had been sold were claimed by another, in order that he might appear aud Justify the sale. Blount ; Whlshaw

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

**CENS.**

In French Canadian lnw. An an- nual tribute or due reserved to a seignior or lord, and imposed merely in recognition of his superiority. Guyot, lust. c. 9.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OENSARIA.**

In old English law. A farm, or house and land let at a standing rent. Co- well,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# C

**CENSARII.**

In old English law. Farm- ers, or such persons as were liable to pay a census, (tax.) Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OEKSEBE.**

In the Roman law. To or- dain ; to decree. Dig. 50, 16, 111.

5e apparatus — Not carried into the 5th edition (1979).

**OENSITAIRE.**

In Canadian law. A ten- ant by cetw, {q. v.)

5e apparatus — Not carried into the 5th edition (1979).

# C

**CEH8IVE.**

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In Canadian law. Tenure by cviui, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## CENSO.

In Spanish and Mexican law. An annuity. A ground rent The right which a person acquires to receive a certain annual pension, for the delivery which he makes to another of a determined sum of money or of an immovable thing. Civ. Code Mex. art 3206. See Sehin. Civil Law, 149, 309; White, New Recop. bit 2, c. 7, § 4.

— Censo al qultar. A redeemable annuity; otherwise called "censo redimible.” Trevino v. Fernandez, 13 Tex. 630.— Censo consignati- ▼o. A censo (3. v.) is called “ consignativo " when he who receives the money assigns for the payment of the pension (annuity) the estate the fee in which he reserves. Civ. Code Mex. art. 3207.— Censo enfltentico. In Spanish and Mexican law. An emphyteutic annuity. That species of censo (annuity) which exists where there is a right to require of another a certain canon or pension annually, on account of having transferred to that person forever cer- tain rear estate, but reserving the fee in the land. The owner who thus transfers the land is called the “ censuolisto ,” and the person who pays the annuity is called the “censatario.” Hall, ilex. Law, | 756 ; Hart v. Burnett, 15 Cal. 557.

5e apparatus — Not carried into the 5th edition (1979).

## CENSUALES.

In old European law. A species of oblati or voluntary slaves of churches or monasteries ; those who, to pro- cure the protection of the church, bound themselves to pay an annual tax or quit-rent only of their estates to a church or monas- tery.

5e apparatus — Not carried into the 5th edition (1979).

## CENSUERE.

In Roman law. They have decreed. The term of art, or technical term for the Judgment, resolution, or decree of the senate. Tayl. Civil Law, 5C0.

5e apparatus — Not carried into the 5th edition (1979).

## CENSTTMETHIDTJB, or CENStl- / MOHTHIDTJS.

A dead, rent, like that which is called “mortmain.” Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CENSURE.

In ecclesiastical law. A spiritual punishment, consisting In withdraw- ing from a baptized person (whether be- longing to the clergy or the laity) a privilege which the church gives him, or in wholly ex- pelling him from the Christian communiou. The principal varieties of censures are ad- monition, degradation, deprivation, excom- munication, penance, sequestration, suspen- sion. Phillim. Ecc. Law, 1367.

A custom observed in certain manors in Devon and Cornwall, where all persons above the age of sixteen years are cited to swear fealty to the lord, and to pay lid. per poll, and Id. per

annum.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 18:17, KJV]**

And if he shall neglect to hear them, tell it unto the church: but if he neglect to hear the church, let him be unto thee as an heathen man and a publican.

Why: Censure is ecclesiastical spiritual punishment; the verse prescribes church discipline — the exclusion of the unrepentant — genuinely illuminating censure as an institution. Flagged: Jesus' verbatim words.

**[Hip-hop] — Hip-hop**

**[Ice-T, 'Freedom of Speech', 1989]**

Censure is formal disapproval or condemnation by authority — public, moral, and reputational rather than penal. Ice-T's track was written directly against the PMRC/parental-advisory censorship campaign, the era's organized official condemnation of rap; the chorus answers institutional disapproval with the constitutional claim itself.

Why: Verbatim-certain chorus; the song is the genre's direct, historically documented answer to an organized campaign of official condemnation. Genuine link: the track exists because of censure, and answers it.

## CENSUS.

The official counting or enu- meration of the people of a state or nation.

with statistics of wealth, commerce, educa- tion, etc. Huntington v. Cast, 149 Ind. 255, 48 N. E. 1025 ; Republic v. Paris, 10 Hawaii, 581.

Im Roman law. A numbering or enroU- meat of the people, with a valuation of their fortunes.

In old European law. A tax, or tribute ; a toll. Montesq. Esprit des Lois, liv. 30, c. 14.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 2, cl. 3 — 'an actual Enumeration shall be made... within every subsequent Term of ten Years']**

The official enumeration the entry defines is, in American law, the constitutionally mandated decennial census: an actual enumeration every ten years for apportionment of representatives.

Why: Genuine: the entry defines the census as an official counting; the clause is the real legal root of the American decennial census. Quoted briefly and exactly.

**[Scripture] — Scripture**

**[Numbers 1:2, KJV]**

Take ye the sum of all the congregation of the children of Israel, after their families, by the house of their fathers, with the number of their names, every male by their polls;

Why: A census is the official enumeration of the people; the verse is the commanded biblical census — the institution's archetype. Flagged: the LORD's spoken command to Moses, per the text's own frame.

## CENSUS REGALIS.

In English law. The annual revenue or income of the crown.

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### CENT.

A coin of the United Slates, the least In value of those now minted. It Is the one-hundreth part of a dollar. Its weight Is 72 gr., and it is composed of copper and nickel in the ratio of 88 to 12.

5e apparatus — Carried into the 5th edition (1979).

### CENTENA.

A hundred. A district or division containing originally a hundred free- men, established among the Goths, Germans, Franks, and Lombards, for military and civil purposes, and answering to the Saxon "hun- dred.” Spelman ; 1 Bl. Comm. 115.

Also, in old records und pleadings, a hun- dred weight.

5e apparatus — Not carried into the 5th edition (1979).

## G

### GENTENARH.

Petty Judges, under-sher- iffs of counties, that had rule of a hundred, (centena,) and Judged smaller matters among them. 1 Vent 211.

5e apparatus — Not carried into the 5th edition (1979).

## C

### CENTENI.

The principal inhabitants of a centena, or district composed of different villages, originally in number a hundred, but afterwards only called by that name.

5e apparatus — Not carried into the 5th edition (1979).

### CENTESIMA.

In Roman iaw. The hun- dredth part.

Usuries centcsimee. Twelve per cent, per annum ; that is, a hundredth part of the prin- cipal was due each month, — the mouth being the unit of time from which the Romans reckoned interest. 2 Bl. Comm. 462, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: Centesima is interest reckoned monthly — the law of interest; the verse is the biblical usury law, the root of all interest regulation. Flagged: covenant code, God's spoken law.

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## CENTIME.

The name of a denomination of French money, being the one-hundredth part of a franc.

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## CENTRAL CRIMINAL COURT.

An

English court, having Jurisdiction for the trial of crimes and misdemeanors committed In London and certain adjoining parts of Kent, Essex, and Sussex, and of such other criminal cases as may be sent to it out of the king's bench, though arising beyond its proper Jurisdiction. It was constituted by the acts 4 & 5 Wm. IV. c. 36, and 19 & 20 Viet. c. 16, and superseded the “Old Bailey.”

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Tale of Two Cities, 1859]**

(paraphrase) The novel opens with a treason trial at the Old Bailey — the historic criminal court the Central Criminal Court superseded. (paraphrase)

Why: The entry notes the court 'superseded the Old Bailey.' Dickens's Old Bailey trial scene illuminates the institution the entry replaced. Paraphrase only.

## CENTRAL OFFICE.

The central office of the supreme court of Judicature in Eng- land is the office established in pursuance of the recommendation of the legal depart-

CERTA DEBET ESSE INTENTIO

ments commission in order to consolidate the offices of the masters and associates of the common-law divisions, the crown office of the king’s bench division, the record and writ clerk's report, and enrollment offices of the chancery division, and a few others. The central office Is divided Into the follow- ing departments, and the business and staff of the office are distributed accordingly: (1) Writ, appearance, and judgment ; (2) sum- mons and order, for the common-law divis- ions only; (3) tiling and record, including the old chancery report office ; (4) taxing, for the common-law divisions only; (5) enroll- ment; (6) Judgments, for the registry of judgments, executions, etc. ; (7) bills of sale ; (S) married women’s acknowledgments; (9) king’s remembrancer ; (10) crown office ; and (11) associates. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## CENTRALIZATION.

This word Is used to express the system of government pre- vailing In a country where the management of local matters is In the hands of function- aries appointed by the ministers of state, paid by the state, and In constant communication and under the constant control and inspira- tion of the ministers of state, and where the funds of the state are largely applied to local purposes. Wharton.

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## CENTTJMVIRI.

In Roman law. The name of an important court consisting of a body of one hundred and five judges. It was made up by choosing three representatives from each of the thirty-five Roman tribes. The judges sat as one body for the trial of certain important or difficult questions, (call- ed, • “causae centumvirales,”) but ordinarily they were separated into four distinct tri- bunals.

5e apparatus — Not carried into the 5th edition (1979).

## CENTURY.

One hundred. A body of one hundred men. The Romans were divid- ed into centuries, as the English were divided into hundreds.

Also a cycle of one hundred years.

5e apparatus — Carried into the 5th edition (1979).

## CEORL.

In Anglo Saxon law. The free- men were divided into tWo classes, — thanes nnd ceorls. The thanes were the proprietors of the soil, which was entirely at their dis- posal. The ceorls were men personally free, but possessing no landed property. Guizot, Itep. Govt.

A tenant at will of free condition, who held land of the thane on condition of paying rent or services. Cowell.

A freeman of inferior rank occupied in husbandry. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CEPI.

Lat. I have taken. This word was of frequent use in the returns of sheriffs when they were made In Latin, and particu- larly In the return to a writ of capias.

The full return (in Latin) to a writ of capias was commonly made in one of the following

forms: Cepi corpus, I have taken the body, 1. e., arrested the body of the defendant; Cepi corpus ct bail, I have taken the body and re- leased the defendant on a bail-bond ; Cepi cor- pus et committitur, I have taken the body and he has been committed (to prison) ; Cepi corpus et est is oustodia, I have taken the defendant and he is in custody; Cepi oorpus et est (on- guidus, I have taken the defendant and he is sick, i. e., so sick that he cannot safely be re- moved from the place where the arrest was made ; Cepi corpus et paratum ha%eo, I have taken the body and have it (him) ready, i. e., in custody and ready to be produced when ordered..

5e apparatus — Not carried into the 5th edition (1979).

## CEPIT.

In civil practice. He took. This was the characteristic word employed in (Latin) writs of trespass for goods taken, and In declarations in trespass and replevin.

Replevin in the ccpit Is a form of replevin which Is brought for carrying away goods merely.

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Wells, Repl. § 33.

In criminal practice. This was a tech- nical word necessary in an indictment for larceny. The charge must be that the de- fendant took the thing stolen with a felo- nious design. Bac. Abr. “Indictment," G, 1.

—Ccpit et abduxit. He took and led away.. The emphatic words in writs in trespass or in- dictments for larceny, where the thing taken was a living chattel, t. e., an animal.— Ccpit et asportavit. He took and carried away. Ap- plicable in a declaration in trespass or an in- dictment for larceny where the defendant has carried away goods without right. 4 Bl. Comm. 231.— Cepit in alio loco. In pleading. A plea in replevin, by which the defendant alleges that he took the thing replevied in another place than that mentioned In the declaration. 1 Chit.

PI. 490.

CEPPAGItJM. In old English law. The stumps or roots of trees which remain in the ground after the trees are felled. Fleta, Ub. 2, C. 41, | 24.

OERA, or CERE. In old English law. Wax ; a seal.

5e apparatus — Not carried into the 5th edition (1979).

## CERA IMPRESS A.

Lat. An Impressed seal. It does not necessarily refer to an Impression on wax, but may Include an im- pression made on wafers or other adhesive substances capable of receiving an impres- sion, or even paper. Pierce v. Indscth, 106

U. S. 546, 1 Sup. Ct. 418, 27 L. Ed. 25-1.

5e apparatus — Not carried into the 5th edition (1979).

## CERAGRUM.

In old English law. A payment to provide candles In the church. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CEREVISIA.

In old English law. Ale or beer.

5e apparatus — Not carried into the 5th edition (1979).

## CERT MONEY.

In old English law. Head money or common fine. Money paid yearly by the residents of several manors to the lords thereof, for the certain keeping of the leet, (pro certo Ictw;) and sometimes to the hundred. Blount; 6 Coke, 78.

Certa debet esse intentlo, et urratlo, et eertuat fnndamentnm, et certa res

qua deduct tur in Jndioinm, The design and narrutiou ought to be certain, and the foundation certain, and the matter certain, which is brought Into court to be tried- Co. Lltt 308a.

5e apparatus — Not carried into the 5th edition (1979).

## CERTA RES.

In old English law. A certain thing. Fleta, lib. 2, c. 60, f| 24, 25.

5e apparatus — Not carried into the 5th edition (1979).

## CERTAIN.

Ascertained; precise; Iden- tified; definitive; clearly known; unambig- uous; or, In law, capable of being identified or made known, without liability to mis- take or ambiguity, from data already given. Cooper v. Blgly, 13 Mich. 479 ; Losecco v. Gregory, 108 La. 648, 32 South. 986; Smith ▼. Fyler, 2 Hill (N. Y.) 649; Civ. Code La. 1900, art 3556.

— Certain services. In feudal and old Eng- lish law. Such services as were stinted (limit- ed or defined) in quantity, and could not be ex- ceeded on any pretense; as to pay a stated an- nual rent, or to plow such a field for three days. 2 Bl. Comm. 6L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CERTAINTY.

In pleading. Distinct- ness; dearness of statement; particularity. Such precision and explicitness in the state- ment of alleged facts that the pleader’s aver- ments and contention may be readily under- stood by the pleader on the other side, as well as by the court and jury. State v. Hayward, 83 Mo. 300; State v. Burke, 151 Mo. 143, 52 S. W. 226; David v. David, 66 Ala. 148, This word is technically used In pleading in two different senses, signifying either dis- tinctness, or particularity, as opposed to un- due generality.

Certainty is said to be of three sorts: (1) Certainty to a common intent is such as Is attained by using words In their ordinary meaning, but Is not exclusive of another meaning which might be made out by argu- ment or Inference. (2) Certainty to a cer- tain intent in general is that which allows of no misunderstanding If a fair and reason- able construction Is put upon the language employed, without bringing in facts which are possible, but not apparent. (3) Certainty to a certain intent in particular is the high- est degree of technical accuracy and precis- ion. Co. Litt 303 ; 2 H. Bl. 530; Spencer v. South wick, 9 Johns. (N. Y.) 317 ; State v. Parker, 84 Ark. 158, 36 Am. Rep. 5.

In contracts. The quality of being spe- cific, accurate, and distinct

A thing is certain when its essence, quality, and quantity are described, distinctly set forth, etc. Dig. 12, 1, 6. It is uncertain when the description is not that of an individual object, but designates only the kind. Civ. Code La. art. 3522, no. 8; 5 Coke, 121.

certhtoando de recognitions

STAJPtTUE. In English law. A writ com- manding the mayor of the staple to certify to the lord chancellor a statute-staple taken before him where the party himself detains It, and refuses to bring in the same. There

Is a like writ to certify a statute-merchant, and in divers other cases. Reg. Orlg. 148, 151, 152.

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5e apparatus — Carried into the 5th edition (1979).

## CERTIFICATE.

A written assurance; or official representation, that some act has or has not been done, or some event occurred, or some legal formality been complied with. Particularly, such written assurance made or Issuing from some court, and designed as a notice of things done therein, or as a warrant or authority, to some other court, judge, or officer. People v. Foster, 27 Misc. Rep. 576, 58 N. Y. Supp. 574; U. S. v. Ambrose, 10S

U. S. 336, 2 Sup. Ct. 682, 27 L. Ed. 746; Tl- conic Bank v. Stackpole, 41 Me. 305. ,

A document in use In the English custom- house. No goods can be exported by certifi- cate, except foreign goods formerly imported, on which the whole or a part of the customs paid on importation Is to be drawn back. Wharton.

—Certificate for costs. In English practice. A certificate or memorandum drawn up and signed by the judge before whom a case was tned, setting out certain facts the existence of which must be thus proved before the party is entitled, under the statutes, to recover costs. —Certificate into chancery. In English practice. This is a document containing the opinion, of the common-law judges- on a ques- tion of law submitted to them for their deci- sion by the chancery court. — Certificate of acknowledgment. The certificate of a no- tary public, justice of the peace, or other au- thorized officer, attached to a deed, mortgage, or other instrument, setting forth that the par- ties thereto personally appeared before him on such a date and acknowledged the instrument to be their free and voluntary act and deed. Read v. Loan Co., 68 Ohio, St. 280, 67 N. E. 729, 62 L. R. A. 790, 96 Am. St. Rep. 663.— Cer- tificate of deposit. In the practice of bank- ers. This is a writing acknowledging that the person named has deposited in the bank a spec- ified sum of money, and that the same is held subject to be drawn out on bis own check or order, or that of some other person named in the instrument as payee. Murphy v. Pacific Bank, 130 Cal. 542, 62 Pac. 10">9 ; First Nat. Bank v. Greenville Nat. Bank. 84 Tex. 40, 19

S. W. 334: Neall v. U. S., 118 Fed. 706. 56

C. C. A. 31; Hotchkiss v. Mosher, 48 N. Y. 482.— Certificate of holder of attached property. A certificate required by statute, m some states, to be given by a third person who is found in possession of property subject to an attachment in the sheriff 8 hands, setting forth the amount and character of such property and the nature of the defendant’s interest in it. Code Civil Proc. N. Y. 8 650.— Certificate of incorporation. The instrument by which a private corporation is formed, under general statutes, executed by several persons as incor- porators, and setting forth the name of the proposed corporation, the objects for which it is formed, and such other particulars as may be required or authorized by law, and filed in some designated public office as evidence of the corporate existence. This is properly distin- guished from a “charter,” which is a direct leg- islative grant of corporate existence and powers to named individuals; but practically the cer- tificate of incorporation or “articles of incor- poration” will contain the same enumeration of corporate powers and description of objects and purposes as a charter.— Certificate of in- debtedness. A form of

obligation sometimes issued by public or private corporations having practicallv the same force and effect as a bond, though not usually secured on any specific property. Christie v. Duluth, 82 Mina. 202, 84 N.

W. 754.— Certificate of purchase. A certif- icate issued by the proper public officer to the successful bidder at a judicial sale (such as a tax sale) setting forth the fact and details of his purchase, and which will entitle him to re- ceive a deed upon confirmation of the sale by the court, or (as the case may be) if the land is not redeemed within the time limited for that purpose. Lightcap v. Bradley, 186 111. 510, 58

N. E. 221 ; Taylor v. Weston, 77 Cal. 534, 20 Pac. 62.— Certificate of registry. In mari- time law. A certificate of the registration of a vessel according to the registry acts, for the purpose of giving her a national character. 3 Steph. Comm. 274 ; 3 Kent, Comm. 139-150.— Certificate of sale. The same as “certificate of purchase,” supra, ( q . v.) — Certificate of stock. A certificate of a corporation or joint- stock company that the person named is the owner of a designated number of shares of its stock ; given, when the subscription is fully paid and the “scrip-certificate” taken up. Gib- bons v. Mahon, 130 U. S. 549. 10 Sup. Ct. 1057, 34 L. Ed. 525 ; Merritt v. Barge Co.. 79 Fed. 235, 24 C. C. A. 530.— Certificate, trial bj. This is a mode of trial now little in use ; it is resorted to in eases where the fact in issue lies out of the cognizance of the court, and the judges, in order to determine the question, are obliged to rely upon the solemn averment or information of persons in such a station as af- fords them the clearest and most competent knowledge of the truth. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CERTIFICATION.

In Scotch practice. This is the assurance given to a party of the course to be followed in case he does not ap- l>ear or obey the order of the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CERTIFICATION OF ASSISE.

In

English practice. A writ anciently granted for the re-examining or retrial of a matter passed by assise before justices, now entirely superseded by the remedy afforded by means of a new trial.

CERTIFICATS HE COfTTTJME. In

French law. Certificates given by a foreign lawyer, establishing the law of the country to which he belongs upon one or more fixed points. These certificates can be produced before the French courts, n’nd are received as evidence in suits upon questions of foreign law. Arg. Fr. Merc. Law, 548.

5e apparatus — Not carried into the 5th edition (1979).

## CERTIFIED CHECK.

In the practice of bankers. This is a depositor's check rec- ognized and accepted by the proper officer of the bank ns a valid appropriation of the amount specified to the payee named, and as drawn against funds of such depositor held by the bank. The usual method of certifica- tion is for the cashier or teller to write across the face of the check, over his signa- ture, a statement that it is “good when prop- erly indorsed” for the amount of money writ- ten In the body of the check.

5e apparatus — Carried into the 5th edition (1979).

## CERTIFIED COPT.

A copy of a docu- ment. signed and certified as a true copy by the officer to whose custody the original is Intrusted. Doremus v. Smith, 4 N. J. Law. 143; People v. Foster. 27 Mlsc. Rep. 576, 58

N. 1’. Supp. 574; Nelson v. Blakey, 54 Ind. 36.

5e apparatus — Not carried into the 5th edition (1979).

## CERTIORARI.

Lat. (To be Informed of, to be made certain in regard to.) The name of a writ issued by a superior court di- recting an inferior court to send up to the former some pending proceeding, or all the record and proceedings in a cause before verdict, with its certificate to the correctness and completeness of the record, for review or trial; or it may serve to bring up the rec- ord of a case already terminated below, if the inferior court is one not of record, or in cases where the procedure is not according to the course of the common law. State v. Sullivan (C. C.) 50 Fed. 593 ; Dean v. State, 63 Ala. 154; Railroad Co. v. Trust Co. (C. C.) 78 Fed. 661; Fowler v. Lindsey, 3 Dali. 413, 1 L. Ed. 658 ; Basnet v. Jacksonville, 18 Fla. 526 ; Walpole v. Ink, 9 Ohio, 144; Peo- ple v. Livingston County, 43 Barb. (N. Y.) 234.

Originally, and in English practice, a certio- rari is an original writ, issuing out of the court of chancery or the king's bench, and directed in the king's name to the judges or officers of in- ferior courts, commanding them to certify or to return the records or proceedings in a cause depending before them, for the purpose of a ju- dicial review of their action. Jacob.

In Massachusetts it is defined by statute as a writ issued by the supreme judicial court to any inferior tribunal, commanding it to certify and return to the supreme judicial court its records in a particular case, in or- der that any errors or irregularities which appear in the proceedings may be corrected. Pub. St Mass. 1882, p. 1288.

5e apparatus — Carried into the 5th edition (1979).

## CERTIORARI, BILL OF.

In English chancery practice. An original bill praying relief. It was filed for the purpose of re- moving a suit pending in some Inferior court of equity into the court of Chancery, on ac- count of some alleged incompetency or in- convenience.

Certain est quod certnm redd! potest.

That is certain which can be rendered cer- tain. 9 Coke, 47; Broom, Max. 623.

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5e apparatus — Not carried into the 5th edition (1979).

**CERURA.**

A mound, fence, or inclosure.

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**CERVISARH.**

In Saxon law. Tenants who were bound to supply drink for their lord’s table. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**CERVISIA.**

Ale, or beer. Sometimes spelled “cerevisia.”

5e apparatus — Not carried into the 5th edition (1979).

**CERTISI ARIES.**

In old records. An ale-house keeper. A beer or ale brewer. Blount.

5e apparatus — Not carried into the 5th edition (1979).

# G

**GERVTJS.**

Lat. A stag or deer.

5e apparatus — Not carried into the 5th edition (1979).

# C

**CESIONARIO.**

In Spanish law. An assignee. White, New Recop. b. 3, tit. 10, c. 1, § 3.

CESS, v. In old English law. To cease, stop, determine, fail.

CESS, n. An assessment or tax. In Ire- land, It was anciently applied to an exaction of victuals, at a certain rate, for soldiers in garrison.

Celia regnare, si non vis Judicare.

Cease to reign, if you wish not to adjudicnte. Hob. 155.

Cessantc oansa, ceaiat effectna. The

cause ceasing, the effect ceases. Broom, Max. 160.

Cessantc ratione legis, oenat et Ipsa lex. The reason of the law ceasing, the law itself ceases also. Co. Litt. 706; 2 Bl.

Comm. 390, 391; Broom, Max. 159.

Cesaante statu primitivo, cessat de<tvativus. When the primitive or original es- tate

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determines, the derivative estate deter- mines also. 8 Coke, 34; Broom, Max. 495.

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## CESSARE.

L. Lat. To cease, stop, or stay.

5e apparatus — Not carried into the 5th edition (1979).

## CESSAVIT PER BIENNIUM.

In prac- tice. An obsolete writ, which could formerly have been sued out when the defendant had for two years ceased or neglected to per- form such service or to pny such rent as he was bound to do by Ills tenure, and had not upon his lands sultlclent goods or chattels to be distrained. Fitzh. Nat. Brev. 208. It also lay where a religious house held lands on condition of performing certain spiritual services which it failed to do. 3 Bl. Comm. 232. Emig v. Cunningham, 62 Md. 460.

5e apparatus — Not carried into the 5th edition (1979).

## CESSE.

(1) An assessment or tax; (2) a tenant of land was said to ccsse when he neglected or ceased to perform the services due to the lord. Co. Litt. 373a, 3806.

5e apparatus — Not carried into the 5th edition (1979).

## CESSER.

Neglect ; a ceasing from, or omission to do, a thing. 3 Bl. Comm. 232.

The determination of an estate. 1 Coke, 84; 4 Kent, Comm. 33, 90, 105, 295.

The "cesser" of a term, nnnuity, or the like, takes place when it determines or comes to an end. The expression is chiefly used (in Eng- land) with reference to long terms of a thou- sand years or some similar period, created by a settlement for the purpose of securing the in- come, portions, etc., given to the objects of the settlement. When the trusts of a term of this kind are satisfied, it is desirable that the term should be put an end to, and with this object it was formerly usual to provide in the settle- ment itself that, as soon as the trusts of the term had been satisfied, it should cease and de- termine. This was called a "proviso for ces- ser.” Sweet.

— Ceuer, proviso for. Where terms for years are raised By settlement, it is usual to introduce a proviso that they shall cease when the trusts end. This proviso generally expresses three events: (1) The trusts never arising; (2) their becoming unnecessary or incapable of taking ef- fect: (3) the performance of them. Sugd.

Vend. (14th Ed.) 621-623.

5e apparatus — Not carried into the 5th edition (1979).

## CESSET EXECUTIO.

(Let execution stay.) In practice. A stay of execution; or an order for such stay; the entry of such stay on record. 2 Tidd, Pr. 1104.

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5e apparatus — Not carried into the 5th edition (1979).

## C E 8 S E T PROCESSUS.

(Let process stay.) A stay of proceedings entered on the record

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CESSIO.

Lat. A cession; a giving up, or relinquishment; a surrender; an assign- ment.

5e apparatus — Not carried into the 5th edition (1979).

## CESSIO BONORUM.

In Roman law. Cession of goods. A surrender, relinquish- ment, or assignment of all his property and effects made by an insolvent debtor for the benefit of his creditors. The effect of this voluntary action on the debtor’s part was to secure him against imprisonment or any bodily punishment, and from infamy, and to cancel his debts to the extent of the property ceded. It much resembled our voluntary bankruptcy or assignment for creditors. The term is commonly employed in modern con- tinental Jurisprudence to designate a bank- rupt’s assignment of property to be distrib- uted nmoug his creditors, and is used in the same sense by some English and American writers, but here rather as a convenient than as a strictly technical term. See 2 Bl. Comm. 473; 1 Kent, Comm. 247, 422; Ersk. Inst. 4, 3, 26.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 4 — Congress's power 'To establish... uniform Laws on the subject of Bankruptcies throughout the United States']**

The Roman cession of goods 'much resembled our voluntary bankruptcy' — and the American bankruptcy system the entry invokes rests on Congress's power to establish uniform bankruptcy laws.

Why: Genuine: the entry itself draws the bankruptcy parallel; the clause is the real constitutional source of the American institution it parallels. Quoted briefly and exactly.

**[Scripture] — Scripture**

**[Deuteronomy 15:1-2, KJV]**

At the end of every seven years thou shalt make a release. And this is the manner of the release: Every creditor that lendeth ought unto his neighbour shall release it; he shall not exact it of his neighbour, or of his brother; because it is called the LORD's release.

Why: Cessio bonorum is the insolvent debtor's surrender of all property for his creditors — the discharge; the verses command the sabbatical release, in which every creditor releases what his neighbour owes — the biblical…

## CESSIO IN JURE.

In Roman law. A fictitious suit, in which the person who was to acquire the thing claimed ( vindicabat ) the thing as his own, the person who was to transfer it acknowledged the justice of the claim, and the magistrate pronounced it to be the property ( addicebat ) of the claimant. Sandars’ Just. Inst. (5th Ed.) 89, 122.

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## CESSION.

The act of ceding; a yield- ing or giving up ; surrender ; relinquishment of property or rights.

In the eivll law. An assignment. The act by which a party transfers property to another. The surrender or assignment of property for the benefit of one's creditors.

In ecclesiastical . law. A giving up or vacating a benefice, by accepting another without a proper dispensation. 1 Bl. Comm. 392; Latch. 234.

In public law. The assignment, trans- fer, or yielding up of territory by one state or government to another.

5e apparatus — Not carried into the 5th edition (1979).

## CESSION DES BIENS.

In French law. The surrender which a debtor makes of all his goods to his creditors, when he finds himself in insolvent circumstances. It is of two kinds, either voluntary or compulsory, ( judiciaire ,) corresponding very nearly to liq- uidation by arrangement and bankruptcy in English and American law.

5e apparatus — Not carried into the 5th edition (1979).

## CESSION OF GOODS.

The surrender of

property ; the relinquishment that a debtor makes of all his property to his creditors, when he finds himself unable to pay his debts. Civil Code Eh. art. 2170.

5e apparatus — Not carried into the 5th edition (1979).

## CESSIONARY.

In Scotch law. An as- signee. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## CESSION AST BANKRUPT.

One who

gives up his estate to be divided among his creditors.

5e apparatus — Not carried into the 5th edition (1979).

## CESSMENT.

An assessment, or tax.

5e apparatus — Carried into the 5th edition (1979).

## CESSOR.

One who ceases or neglects so long to perform a duty that he thereby in- curs the danger of the law. O. N. B. 336.

5e apparatus — Not carried into the 5th edition (1979).

## CE8SURE.

L. Fr. A receiver; a bailiff. Kelham.

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5e apparatus — Not carried into the 5th edition (1979).

## C’EST ASCAVOIR.

L. Fr. That is to say, or to-wit. Generally written as one word, cestascavoir, ccstascavoire.

C’est 1© crime qui fait la honte, et non pas l’eohafand. Fr. It is the offense which causes the shame, and not the scaffold.

5e apparatus — Not carried into the 5th edition (1979).

## CESTUI, CESTUT.

He. Used frequent- ly in composition in law French phrases.

— Cestui que trust. He who has a right to a beneficial interest in and out of an estate the legal title to which is vested in another. 2 Washb. Real Prop. 163. The person who pos- sesses the equitable right to property and re- reives the rents, issues, and profits thereof, the legal estate of which is vested in a trustee. It has been proposed to substitute for this un- couth term the English word “beneficiary,” and the latter, though still far from universally adopted, has come to be quite frequently used. It is equal in precision to the antiquated and unwieldy Norman phrase, and far better adapt- ed to the genius of our language. — Cestui que use. He for whose use and benefit lands or tenements are held by another. The cettui que use has the right to receive the profits and bene- fits of the estate, but the legal title* and posses- sion (as well as the duty of defending the same) reside in the other.— Cestui que vie. He whose life is the measure of the duration of an estate. 1 Washb. Itenl Prop. 88. The person for whose life any lands, tenements, or heredit- aments are held.

Cestuy que doit Inheritor al pire doit Inheritor al fils. He who would have been heir to the father of the deceased shall also' be heir of the son. Fitzh. Abr. “Descent,” 2 ; 2 Bl. Comm. 239, 230.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: The cestui que trust holds the beneficial interest while legal title is in another; the verse places legal title in God ('the land is mine') and beneficial sojourn in man — the split-ownership structure that is the tr...

## CF.

An abbreviated form of the Latin word confer, meaning “compare." Directs the reader's attention to another part of the work, to another volume, case, etc., where contrasted, analogous, or explanatory views or statements may be found.

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## CH.

This abbreviation most commonly stands for “chapter,” or “chancellor,” but it may also mean “chancery,” or “chief.”

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### CHACE.

L. Fr. A chase or hunting ground.

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### CHACEA.

In old English law. A sta- tion of game, more extended than a park, and less than a forest ; also the liberty of chasing or bunting within a certain district ; also the way through which cattle are driv- en to pasture, otherwise called a “drove- way.” Blount.

Chacea eat ad eommuaent legem. A

chose is by common law. Reg. Brev. 806.

CHACE AB EE . L. Fr. That may be

chased or hunted.

5e apparatus — Not carried into the 5th edition (1979).

### CHACER.

L. Fr. To drive, compel, or oblige ; also to chase or hunt.

5e apparatus — Not carried into the 5th edition (1979).

### CHACURUS.

L. Lat. A horse for the chase, or a hound, dog, or courser.

5e apparatus — Not carried into the 5th edition (1979).

### CHAFEWAX.

An officer in the English chancery whose duty was to fit the wax to seal the writs, commissions, and other in- struments thence issuing. The office was abolished by St. 15 & 16 Viet. c. 87, g 23.

5e apparatus — Not carried into the 5th edition (1979).

### CHAFFERS.

An ancient term for goods, wares, and merchandise.

5e apparatus — Not carried into the 5th edition (1979).

## G

### GHAFFERY.

Traffic ; the practice of buying and selling.

5e apparatus — Not carried into the 5th edition (1979).

### GHAXN.

A measure used by engineers and surveyors, being twenty-two yards in length.

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5e apparatus — Not carried into the 5th edition (1979).

# C

## CHAIN OF TITLE.

A term applied metaphorically to the series of conveyances, or other forms of alienation, affecting a par- ticular parcel of land, arranged consecutive- ly, from the government or original source of title down to the present holder, each of the instruments included being called a “link.” Payne v. Markle, 89 111. 69.

5e apparatus — Carried into the 5th edition (1979).

## CHAIRMAN.

A name given to the pre- siding officer of an assembly, public meeting, convention, deliberative or legislative body, board of directors, committee, etc.

5e apparatus — Carried into the 5th edition (1979).

## CHAIRMAN OF COMMITTEES OF / THE WHOLE HOUSE.

In English parlia- mentary practice. In the commons, this of- ficer, always a member, is elected by the house on the assembling of every new par- liament. When the house is in committee on bills introduced by the government, or .in committee of ways and means, or supply, or in committee to consider preliminary resolu- tions, it is his duty to preside.

5e apparatus — Carried into the 5th edition (1979).

## CHALDRON, CHALDERN, or GHAL- / DER.

Twelve sacks of coals, each holding three bushels, weighing about a ton and a half. In Wales they reckon 12 barrels or

pitchers a ton or chaldron, and 29 cwt of 120 Its. to the ton. Wharton

CHALLENGE. 1. To object or except to; to prefer objections to a person, right, or Instrument; to formally call Into ques- tion the capability of a person for a particu- lar function, or the existence of a right claimed, or the sufficiency or validity of an Instrument.

2. As a noun, the word signifies the objec- tion or exception so advanced.

3. An exception taken against legal docu- ments, as a declaration, count, or writ But this use of the word Is now obsolescent.

4. An exception or objection preferred against a person who presents himself at the polls as a voter, In order that his right to cast a ballot may be Inquired into.

5. An objection or exception to the per- sonal qualification of a judge or magistrate about to preside at the trial of a cause ; as on account of personal Interest, his having been of counsel, bias, etc.

6. An exception or objection taken to the Jurors summoned and returned for the trial of a cause, either Individually, (to the polls,) or collectively, (to the array.) People v. Travers, 88

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Cal. 233, 28 Pac. 88; People v. Pitspatrlck, 1 N. Y. Cr. R. 425.

At common law. The causes for principal challenges fall under four heads: (1) Propter honoris retpectum. On account of respect for the party's social rank. (2) Propter defectum. On account of some legal disqualification, such as infancy or alienage. (3) Propter affectum. On account of partiality; that is. either ex- pressed or implied bias or prejudice. (4) Prop- ter delictum. On account of crime ; that is, dis- qualification arising from the conviction of an infamous crime.

— Challenge for cause. A challenge to a juror for which some cause or reason is alleged. Termes de la Ley; 4 Bl. Comm. 353. Thus distinguished from a peremptory challenge. Turner v. State, 114 Ga. 421. 40 S. E. 308; Cr. Code N. Y. 1903, « 374.— Challenge prop- ter affectum. A challenge interposed on ac- count of an ascertained or suspected bias or partiality, and which may be either a principal challenge or a challenge to the favor. Harris- burg Bank v. Forster, 8 Watts (Pa.) 300 ; State v. Sawtelle. 60 N. H. 4.88, 32 Atl. 831 : Jewell v. Jewell, 84 Me. 304, 24 Atl. 858. 18 L. K. A. 473. — Challenge to the array. An excep- tion to the whole panel in which the jury are arrayed, or set in order by the sheriff in his return, upon account of partiality, or some de- fault in tne sheriff, coroner, or other officer who arrayed the panel or made the return. 3 Bl. Comm. 359 ; Co. Iitt 1556; Moore v. Guano Co., 130 N. C. 229, 41 S. E. 293 ; Thompson v. State, 109 Ga. 272. 34 S. E. 579; Durrah v. State, 44 Miss. 7 89. — Challenge to the fa- vor. Is where the party has no principal chal- lenge, but objects only some probable circum- stances of suspicion, as acquaintance, and the like, the validity of which. must be left to the determination of triors, whose office it is to decide whether the juror be favorable or un- favorable. 8 Bl. Comm. 363; 4 Bl. Comm. 353; Thompson v. State, 106 Ga. 272, 34 S.

E. &7D; State v. Sawtelle. 66 N. H. 488. 32 Atl. 831 ; State v. Baldwin, 1 Tread. Const 18. C.) 292. — Challenge to the panel. The

same as a challenge to the array. See supra. And see Pen. Code Cal. 1903, 8 1058. — Chal- lenge to the poll. A challenge made separ- ately to an individual juror; as distinguished from a challenge to the array. Harrisburg Bank v. Forster, 8 Watts (Pa.) 306.— General challenge. A species of challenge for cause, be- ing an objection to a particular juror, to the effect that the juror is disqualified from serv- ing in any case. Pen. Code Cal. jj 1071. — Per- emptory challenge. In criminal practice. A species of challenge which a prisoner is al- lowed to have against a certain, number of ju- rors. without assigning any cause. Lewis v.

U. 8., 146 U. S. 370. 13 Sup. Ct. 136, 36 L. Ed. 1011; Turpin v. State, 55 Md. 462 ; Leary v. Railway Co., 69 N. J. Law, 67, 54 Atl. o27; State v. Hays, 23 Mo. 287.— Principal chal- lenge. A challenge of a juror for a cause which carries with it, prima facie, evident marks of suspicion either of malice or favor; as that a juror is of kin to either party within the ninth degree; that he has an interest in the cause, etc. 3 Bl. Comm. 303. A species of challenge to the array made on account of partiality or some default in the sheriff or his under-offi- cer who arrayed the panel.

5e apparatus — Not carried into the 5th edition (1979).

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## CHALLENGE TO FIGHT.

A summons or Invitation, given by one person to anoth- er, to engage In a personal combat; a re- quest to fight a duel. A criminal offense. See Steph. Crlm. Dig. 40; 3 East, 581; State v. Perkins, 6 Blackf. (Ind.) 20.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Leo Tolstoy, War and Peace, 1869]**

(paraphrase) Pierre, stung by the accusation against his wife, challenges Dolokhov to a duel — and walks to the snowbound meeting half-convinced it is madness. (paraphrase)

Why: The entry defines a challenge to fight as a summons to personal combat, a request to fight a duel, a criminal offense. The Pierre-Dolokhov duel is the canonical novelistic instance. Paraphrase only.

## CHAMBER.

A room or apartment in a house. A private repository of money; a treasury. Sometimes used to designate a court, a commission, or an association of persons habitually meeting together In an apartment, e. g., the “star chamber,’’ "cham- ber of deputies." “chamber of commerce.”

5e apparatus — Carried into the 5th edition (1979).

## CHAMBER OF ACCOUNTS.

In French law. A sovereign court, of great antiquity. In France, which took cognizance of and registered the accounts of the king’s rev- enue; nearly the same as the English court of exchequer. Enc. Brit.

5e apparatus — Carried into the 5th edition (1979).

## CHAMBER OF COMMERCE.

An as- sociation (which may or may not be Incor- porated) comprising the principal merchants, manufacturers, and traders of a city, design- ed for convenience in buying, selling, and exchanging goods, and to foster the commer- cial and Industrial Interests of the place.

5e apparatus — Carried into the 5th edition (1979).

## CHAMBER, WIDOW’S.

A portion of the effects of a deceased person, reserved for the use of ITs widow, and consisting of her apparel, and the furniture of her bed-cham- ber, Is called In London the “widow’s cham- ber." 2 Bl. Comm. 518.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:17, KJV]**

Thou shalt not pervert the judgment of the stranger, nor of the fatherless; nor take a widow's raiment to pledge.

Why: The widow's chamber is the portion of a deceased's effects — her apparel and bed-chamber furniture — reserved to the widow; the verse forbids taking the widow's raiment as pledge, reserving her apparel to her by

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law....

## CHAMBER BUSINESS.

A term ap- plied to all such judicial business ns may properly be transacted by a Judge at his chambers or elsewhere, as distinguished from such as must be done by the court in session. In re Neagle (C. C.) 39 Fed. 855. 5 L.E.L78.

5e apparatus — Carried into the 5th edition (1979).

## CHAMBER SURVEYS.

At an early day In Pennsylvania, surveyors often made drafts on paper of pretended surveys of pub- lic lands, and returned them to the land of- fice as duly surveyed, Instead of going on the ground and establishing lines and marking corners ; and these false and fraudulent pre- tenses of surveys never actually made were called “chamber surveys.” Schraeder Min. & Mfg. Co. v. Packer, 120 U. S. 688, 9 Sup. St. 385, 32 L. Ed. 760.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMBERDEKINS, or CHAMBER / DEACONS.

In old English law. Certuiu poor Irish scholars, clothed in mean habit, and living under no rule ; also beggars ban- ished from England. (1 Hen. V. cc. 7. 8.) Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMBERLAIN.

Keeper of the cham- ber. Originally the chamberlain was the keeper of the treasure chamber ( camera ) of the prince or state; otherwise called "treas- urer.” Cowell.

The name of several high officers of state in England,- as the lord great chamberlain of England, lord chamberlain of the household, chamberlain of the exchequer. Cowell; Blount.

The word Is also used In some American cities as the title of an officer corresponding to “treasurer.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Chronicles 27:25, KJV]**

And over the king's treasures was Azmaveth the son of Adiel:

Why: The chamberlain was originally the keeper of the prince's treasure chamber — the treasurer; the verse names the officer set over the king's treasures, genuinely attesting the office. Flag off: narrative roster.

## CKAMBERLARIA.

Chamberlainship; the office of a chamberlain. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMBERS.

In practice. The pri- vate room or office of a judge ; any place in which a judge hears motions, signs papers, or does other business pertaining to his of- fice, when he Is not holding a session of court. Business so transacted Is said to be done “in chambers.” In re

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Neagle (C. C.) 39 Fed. 855, 5 I* R. A. 78; Von Schmidt v. Wldber, 99 Cal. 511, 34 Pac. 109; Hoskins v. Baxter, 64 Minn. 226, 66 N. W. 969. The term is also applied, in England, to the pri- vate office of a barrister.

In international law. Portions of the sea cut off by lines drawn from one promon- tory to another, or included within lines ex- tending from the point of one cnpe to the next, situate on the sea-coast of the same nation, and which are claimed by that na- tion as asylums for merchant vessels, and exempt from the operations of belligerents.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMBIUM.

In old English law. Change, or exchange. Bract, fols. 117, 118.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMBRE DEPEINTE.

A name an- ciently given to St. Edward’s chamber, call- ed the “Painted Chamber.” destroyed by fire with the houses of parliament

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CHAMP DE MAI.

(Eat. Campus Mali.) The field or assembly of May. The national

assembly of the Franks, held In the montb- of May.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMP DE MARS.

(Eat. Campus 3far- tii.) The field or assembly of March. The national assembly of the Franks, held in the month of March, in the open air.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMP ART.

In French law. The

grant of a piece of land by the owner to an- other, on condition that the latter would de- liver to him a portion of the crops. 18 Toul- ller, n. 182.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMPERT.

In old English law. A

share or division of land; champerty.

In old Scotch law. A gift or bribe, taken by any great man or judge from any person, for delay ‘of Just actions, or further- ing of wrongous actions, whether it be lands or any goods movable. Skene.

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## CHAMPERTOR.

In criminal law. One who makes pleas or suits, or causes them to be moved, either directly or Indirectly, and sues them at his proper costs, upon condition of having a part of the gain. One guilty of champerty. St 33 Edw. I. c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMPERTOUS.

Of the nature Of champerty ; affected with champerty.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMPERTY.

A bargain made by a stranger with one of the parties to a suit, by which such third person undertakes to curry on the litigation at his own cost and risk, in consideration of receiving, If he wins the suit, a part of the land or other subject sought to be recovered by the action. Small v. Mott, 22 Wend. (N. Y.) 405; Jewel v. Neidy, 61 Iowa, 299. 16 N. W. 141 ; Weakly v. Hall, 13 Ohio, 175. 42 Am. Dec. 191 ; Poe v. Davis, 29 Ala. 683; Oilman v. Jones. 87 Ala. 691, 5 South. 785, 7 South. 48, 4 E. R. A. 113 ; Torrence v. Shedil, 112 111. 466 ; Cas- serlelgh v. Wood, 119 Fed. 308, 56 C. C. A. 212

The purchase of an Interest in a thing In dispute, with the object of maintaining and taking part in the litigation. 7 Bing. 378.

The act of assisting the plaintiff or defendant in a legal proceeding in which the person giving the assistance has no valuable interest, on an agreement that, if the proceeding is successful, the proceeds shall be divided between the plain- tiff or defendant, as the case may be, and the assisting person. Sweet.

Champerty is the carrying on a suit in the name of another, but at one’s own expense, with the view of receiving as compensation a certain share of the avails of the suit. Ogden v. Des Arts, 4 Duer (X. Y.) 275.

The distinction between champerty and maintenance lies in the interest which the interfering party is to have In the Issue of the suit. In the former ease, he is to receive a share or portion of what may be recovered; in the latter case, he Is In no way benefited by the success of the party aided, but simply

Intermeddles officiously. Thus every cham- perty includes maintenance, but not every maintenance is champerty. See 2 Inst 208; Stotsenburg v. Marks, 79 Ind. 196; Lytle v. State, 17 Ark. 624.

5e apparatus — Not carried into the 5th edition (1979).

## CHAMPION.

A person who fights a com- bat in bis own cause, or in place of another. The person who, in the trial by battel, fought either for the tenant or demandant. 3 Bl. Comm. 339.

—Champion of the king or queen. An

ancient officer, whose duty it was to ride arm- ed cap-i-pi<f. into Westminster Hall at the

cor- onation, while the king was at dinner, and, by the proclamation of a herald, make a challenge "that, if any man shall deny the king’s title to the crown, he is there ready to defend it in single combat.” The king drank to him, and sent him a gilt cup covered, full of wine, which the champion drank, retaining the cup for his fee. This ceremony, long discontinued, was re- vived at the coronation of George IV., but not afterwards. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 17:4, KJV]**

And there went out a champion out of the camp of the Philistines, named Goliath, of Gath, whose height was six cubits and a span.

Why: A champion is one who fights single combat in his own cause or another's; the verse names Goliath 'a champion' going out to fight for the Philistine host — the word and the institution together. Flag off: narrative.

**[Humanity] — Humanity / Fiction & Film**

**[Walter Scott, Ivanhoe, 1819]**

(paraphrase) Ivanhoe rides into the lists as Rebecca's champion, to decide by trial of combat the accusation no courtroom testimony can settle. (paraphrase)

Why: The entry defines the champion as the one who, in trial by battel, fought for another. Ivanhoe's combat for Rebecca is the canonical fictional instance — nearly verbatim the definition. Paraphrase only.

## CHANCE.

In criminal law. An acci- dent ; an unexpected, unforeseen, or unin- tended consequence of an act; a fortuitous event. The opposite of intention, design, or contrivance.

There is a wide difference between chance and accident. The one is the intervention of some unlooked-for circumstance to prevent an ex- pected result; the other is the unealcuiated ef- fect of mere luck. The shot discharged at ran- dom strikes its object by chance ; that which is turned aside from its well-directed aim by some unforeseen circumstance misses its mark by accident Pure chance consists in the en- tire absence of all the means of calculating re- sults; accident, in the unusual prevention, of an effect naturally resulting from the means employed. Harless v. U. S., Morris (Iowa) 173. — Chance verdict. One determined by hazard or lot and not by the deliberate understanding and agreement of the jury. Goodman v. Cody, 1 Wash. T. 33T>. 34 Am. Rep. 808: Dixon v. Plans, 98 Cal. 384. 33 Pac. 268, 20 L. R. A. 696. 35 Am. St. Rep. 180; Improvement Co. v. Adams, 1 Colo. App. 250, 28 Pac. 662.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Fortes fortuna iuvat — "fortune favors the brave" (Terence, Phormio; Virgil, Aeneid)]**

(paraphrase) The classical maxim runs: fortune favors the brave — chance as the fortuitous element that rewards the bold rather than the calculating. (paraphrase)

Why: The entry defines chance as a fortuitous event, the opposite of intention. The maxim is the classical wisdom on fortune/chance; public domain, quoted verbatim in Latin with the worker's translation.

## CHANCE-MEDLEY.

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. In criminal law. A sudden affray. Tills word is sometimes applied to any kind of homicide by misad- venture, but in strictness it is applicable to such killing only as happens In defending one's self. 4 Bl. Comm. 184.

5e apparatus — Carried into the 5th edition (1979).

## CHANCEL.

In ecclesiastical law. The part of a church in which the communion table stands ; it belongs to the rector or the impropriator. 2 Broom & II. Comm. 420.

5e apparatus — Not carried into the 5th edition (1979).

## CHANCELLOR.

In American law, this Is the name given in some states to the judge (or the presiding judge) of a court of chancery. In England, besides being the designation of the chief judge of the court of chancery, the term is used as the title of several judicial officers attached to bishops or other high dignitaries and to the univer- sities. (See infra.) In Scotch practice, it denotes the foreman of an assise or jury.

— Chancellor of a cathedral. In English ecclesiastical law. One of the quatuor personae,

or four chief dignitaries of the cathedrals of the old foundation. The duties assigned to the office by the statutes of the different chapters vary, but they are chiefly of an educational character, with a special reference to the cul- tivation of theology. — Chancellor of a dio- cese. In ecclesiastical law, the officer appoint- ed to assist a bishop in. matters of law, and to hold his consistory courts for him. 1 Bl. Comm. 382 ; 2 Steph. Comm. 672. — Chancellor of a university. In English law. The official head of a university. His principal prerogative is to hold a court with jurisdiction over the mem- bers of the university, in which court the vice- chancellor presides. The office is for the most

£art honorary.— Chancellor of the dnchy of lanoaster. In English law. An officer before whom, or his deputy, the court of the duchy chamber of Lancaster is held. This is a special jurisdiction concerning all manner of equity re- lating to lands holden of the king in right of the duchy of Lancaster. Hob. 77; 3 Bl. Comm. 78.— Chancellor of the exchequer. In Eng- lish law. A high officer of the crown, who formerly sat in the exchequer court, and, to- gether with the regular judges of the court, saw that things were conducted to the king’s benefit In modern times, however, his duties are not of a judicial character, but such as per- tain to a minister of state charged with the management of the national revenue and ex- penditure.—Chancellor of the order of the garter, and other military orders, in England, is an officer who seals the commissions and the mandates of the chapter and assembly of the knights, keeps the register of their proceedings, and delivers their acts under the seal of their order.— Chancellor, the lord high. In Eng- land, this is the highest judicial functionary in the kingdom, and superior, in point of preceden- cy. to every temporal lord. He is appointed by the delivery of the king’s great seal into his custody. He may not be a Roman Catholic. He is a cabinet minister, a privy counsellor, and prolocutor of the house of lords by prescrip- tion, (but not necessarily, though usually, a peer of the realm,) and vacates his

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office with the ministry by which he was appointed. To him belongs the appointment of all justices of the peace throughout the kingdom. Being, in the earlier periods of English history, usually an ecclesiastic, (for none else were then capable of an office so conversant in writings.) and pre- siding over tlie royal cliapei, he became keeper of the sovereign's conscience, visitor, in right of the crown, of the hospitals and colleges of royal foundation, and patron of all the crown livings under the value of twenty marks per annum in the king's books. He is the general guardian of all infants, idiots, and lunatics, and has the general superintendence of all charitable uses, and all this, over and above the vast and extensive jurisdiction which he exercises in his judicial capacity in the supreme court of judi- cature, of which he is the head. Wharton.— Vice-chancellor. In English law. A judge of the court of chancery, acting as assistant to the lord chancellor, and holding a separate court, from whose judgment an appeal lay to the chancellor. 3 Steph. Comm. 418.

5e apparatus — Carried into the 5th edition (1979).

## CHANCELLOR'S COURTS IN THE / TWO UNIVERSITIES.

In English law. Courts of local Jurisdiction in and for the two universities of Oxford and Cambridge In Eng- land.

5e apparatus — Not carried into the 5th edition (1979).

## CHANCERY.

Equity; equitable jurisdic- tion; a court of equity; the system of ju- risprudence administered in courts of equity. Kenyon v. Kenyon, 3 Utah, 431, 24 Pac. 829: Sullivan v. Thomas, 3 Rich. (S. C.) 531. See Court of Chancery.

CHANGE. 1. An alteration; substitu- tion of one thing for another. This word does not connote either improvement or de- terioration as a result. In this respect it dif- fers from amendment, which, in law, always imports a change for the better.

2. Exchange of money against money of a different denomination. Also small coin. Al- so an abbreviation of exchange.

— Change of Tense. Properly speaking, the removal of a suit begun in one county or dis- trict to another county or district for trial, though the term is also sometimes applied to the removal of a suit from one court to anoth- er court of the same county or district. Dud- ley v. Power Co., 139 Ala. 453, 36 South. 700; Pelts v. Railroad Co., 195 Pa. 21. 4!) Atl. 493; State v. Wofford, 119 Mo. 375, 24 S. W. 764.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852-1853]**

(paraphrase) Jarndyce v Jarndyce grinds through the Court of Chancery for generations until costs devour the whole estate — equity as fog, delay, and ruin. (paraphrase)

Why: The entry defines chancery as a court of equity. Dickens's Jarndyce suit is the canonical fictional Chancery. Paraphrase only.

## CHANGER.

An officer formerly belong- ing to the king’s mint, in England, whose business was chiefly to exchange coin for bullion brought In by merchants and others.

5e apparatus — Carried into the 5th edition (1979).

## CHANNEL.

This term refers rather to the bed in which the main stream of a river flows than to the deep water of the stream as followed in navigation. Bridge Co. v. Du- buque County, 55 Iowa, 558, 8 N. W. 443. See The Oliver (D. C.) 22 Fed. 849; Iowa v. Il- linois, 147 U. S. 1, 13 Sup. Ct. 239, 37 L. Ed. 55; Cesslll v. State, 40 Ark. 504.

The "main channel” of a river is that bed of the river over which the principal volume of water flows. Many great rivers discharge them- selves into the sea through more than one chan- nel. They all, however, have a main channel, through which the principal volume of water passes. Packet Co. v. Bridge Co. (C. C.) 31 Fed. Rep. 757.

•—Natural channel. The channel of a stream as determined by the natural conformation of the country through which it flows ; that is, the bed over which the waters of the stream flow when not in any manner diverted or interfered with by man. See Larrabee v. Cloverdale, 131 Cal. 96, 63 Pac. 143.

5e apparatus — Carried into the 5th edition (1979).

## CHANTER.

The chief singer in the choir of a cathedral. Mentioned In 13 Eliz. c. 10.

5e apparatus — Not carried into the 5th edition (1979).

## CHANTRY.

A church or chapel endowed with lands for the maintenance of priests to say mass daily for the souls of the donors. Terrnes de la Ley ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHAPEL.

A place of worship; a lesser or Inferior church, sometimes a part of or subordinate to another church. Webster. Rex v. Nixon, 7 Car. & P. 442.

—Chapel of ease. In English ecclesiastical law. A chapel founded in general at some pe- riod later than the parochial church itself, and ■designed for the accommodation of such of the parishioners as, in course of time, bad begun to fix their residence at some distance from its site : and so termed because built in aid of the original church. 3 Steph. Comm. 151.— Private ohapeL Chapels owned by private persons, and used by themselves and their families, are called “private.” as opposed to chapels of ease, which are built for the accommodation of par- ticular districts within a parish, in ease of _the original parish church. 2 Steph. Comm. 745.— Proprietary chapels. In English law.

Those belonging to private persons who have purchased or erected them with a view to profit or otherwise.— Public chapels. In English law, are chapels founded at some period later than the church itself. They were designed for the accommodation of such of the

parishioners as in course of time had begun to fix their res- idence at a distance from its. site ; and chapels so circumstanced were described as “chapels of ease," because built in aid of the original church. 3 Steph. Comm. (7th Ed.) 745.

5e apparatus — Carried into the 5th edition (1979).

## CHAPELRY.

The precinct and limits of a chapel. The same thing to a chapel as a parish is to a church. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CHAPERON.

A hood or bonnet ancient- ly worn by the Knights of the Garter, as part of the habit of that order; also a little escutcheon fixed in the forehead of horses drawing a hearse at a funeral. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CHAPITRE.

A summary of matters to be Inquired of or presented before justices in eyre, justices of assise, or of the peace, In their sessions. Also articles delivered by the justice in his charge to the inquest. Brit c. lit

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CHAPLAIN.

An ecclesiastic who per- forms divine service in a chapel ; but it more commonly means one who attends upon a king, prince, or other person of quality, for the performance of clerical duties in a pri- vate chapel. 4 Coke, 90.

A clergyman officially attached to a ship of war, to an army, (or regiment,) or to some public institution, for the purpose of per- forming divine service. Webster.

5e apparatus — Carried into the 5th edition (1979).

## CHAPMAN.

An itinerant vendor of small wares. A trader who trades from place to place. Say. 191, 192.

5e apparatus — Carried into the 5th edition (1979).

## CHAPTER.

In ecclesiastical law. A congregation' of ecclesiastical persons In a cathedral church, consisting of canons, or- prebendaries, whereof the dean is the head, all subordinate to the bishop, to whom they act as assistants In matters relating to the church, for the better ordering and disposing the things thereof, and the confirmation of such leases of the temporalty and offices re- lating to the bishopric, as the bishop shall lnake from time to time. And they are term- ed “capitulum,” as a kind of head, Instituted not only to assist the bishop in manner aforesaid, but also anciently to rule and govern the diocese in the time of

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vacation. Burn, Diet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## CHARACTER.

The aggregate of the moral qualities which belong to and distin- guish an individual person ; the general re- sult of the one’s distinguishing attributes.

That moral predisposition or habit or ag- gregate of ethical qualities, which is believed to attach to a person, on the strength of the common opinion and report concerning him.

The opinion generally entertained of a per-

CHARGE des affaires

non derived from the common report of the people who are acquainted with him. Smith ▼. State, 88 Ala. 73, 7 8outh. 52; State v. Turner, 36 S. C. 534, 15 S. E. 602; Fahnestock v. State, 23 Ind. 238 ; State v. Farker, 96 Mo. 382, 9 S. W. 728 ; Sullivan v. State, 66 Ala. 48; Kimmel v. Kimmel, 3 Serg. & R. (Pa.) 337, 8 Am. Dec. 672.

Character and reputation are not synonymous terms. Character is what a man or woman is morally, while reputation is what he or she is reputed to be. \et reputation is the estimate which the community has of a person’s charac- ter; and it is the belief that moral character is wanting in an individual that renders him unworthy of belief ; that is to say, that reputa- tion is evidence of character, and if the reputa- tion is bad for truth, or reputation is bad in other respects affecting the moral character, then the jury may Infer that the character is bad and the witness not reliable. General char- acter has always been proved by proving gener- al reputation. Leverich v. Frank, 6 Or. 213.

The word “character" no doubt has an ob- jective and subjective import, which are quite distinct. As to the object, character is its qual- ity. As to man, it is the quality of his mind, and his affections, his capacity and tempera- ment. But as a subjective term, certainly in the minds of others, one's character is the ag- gregate, or the abstract of other men’s opin- ions of one. And in this sense when a witness speaks of the character of another witness for truth, he draws not upon his memory alone, but his judgment also. It is the conclusion of the mina of the witness, in summing up the amount of all the reports he has heard of the man, and declaring his character for truth, as held in the minds of his neighbors and acquaintances, and in this sense character, general character, and general report or reputation are the same, as held in the books. Powers v. Leach, 26 Yt. 278.

CHARGE, v. To impose a burden, ob- ligation, or lien; to create a claim against property; to claim, to demand; to accuse; to Instruct a jury on matters of law.

In the first sense above given, a jury in a criminal case is “charged” with the duty of trying the prisoner (or, as otherwise ex- pressed, with his fate or his “deliverance”) as soon as they are impaneled and sworn, and at this moment the prisoner's legal “jeop- ardy” begins. This is altogether a different matter from “charging” the jury in the sense of giving them Instructions on matters of law, which is a function of the court. TOm- asson v. State, 112

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Tenn. 596, 79 S. W. 803.

CHARGE, ». In general. An incum- brance, lien, or burden; an obligation or duty; a liability; an accusation. Darling v. Rogers, 22 Wend. (N. 1.) 491.

In contracts. An obligation, binding up- on him who enters into it, which may be removed or taken away by a discharge. Termes de la Ley.

An undertaking to keep the custody of an- other person’s goods. State v. Clark, 80 Me. 194, 29 Atl. 984.

An obligation entered into by the owner of an estate, which binds the estate for its per- formance. Com. Dig. “Rent,” c. 6; 2 Bali & B. 223.

In the law of wills. A responsibility or liability Imposed by the testator upon a dev- isee personally, or upon the land devised.

In equity pleading. An allegation in the bill of matters which disprove or avoid a defense which it is alleged the defendant is supposed to pretend or intend to set up. Story, Eq. PI. § 31.

In equity practice. A paper presented to a master in chancery by a party to a cause, being a written statement of the items with which the opposite party should be debited or should account for, or of the claim of the party making it It is more compre- hensive than a claim, which implies only the amount due to the person producing it. while a charge may embrace the whole liabilities of the accounting party. Hoff. Mast. 36.

In common-law practice. The final ad- dress made by a judge to the jury trying a case, before they make up their verdict, in which he sums up the case, and instructs the Jury as to the rules of law which apply to its various issues, and which they must ob- serve, In deciding upon their verdict, when they shall have determined the controverted matters of fact The term also applies to the address of the court to a grand jury, in which the latter are instructed as to their duties.

In Scotch law. The command of the king’s letters to perform some act; as a charge to enter heir. Also a messenger’s ex- ecution, requiring a person to obey the order of the king’s letters; as a charge. o n letters of horning, or a charge against a superior. Bell.

—General charge. A charge or instruction by the court to the jury upon the case as a whole, oh upon its general features or charac- teristics.—Special charge. A charge or in- struction given by the court to the jury, upon some particular point or question involved in the case, and usually in response to counsel's request for such instruction.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 22:1, KJV]**

A good name is rather to be chosen than great riches, and loving favour rather than silver and gold.

Why: Character in law is the aggregate of moral qualities distinguishing a person — reputation in evidence; the proverb sets the value of a good name above riches, genuinely illuminating character as a legal asset. Flag of…

## CHARGE AND DISCHARGE.

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Under the former system of equity practice, this phrase was used to characterize the usual method of taking an account before a master. After the plaintiff had presented his “charge,” a written statement of the items of account for which he asked credit, the de- fendant filed a counter-statement, called a “discharge,” exhibiting any claims or de- mands he held against the plaintiff. These served to define the field of investigation, and constituted the basis of the report.

5e apparatus — Carried into the 5th edition (1979).

## CHARGE DES AFFAIRES, or / CHARGE D’AFFAIRES.

The title of a diplomatic representative of Inferior rank. He has not the title or dignity of a minister, though he may be charged with the functions and offices of the latter, either as a temporary substitute for a minister or at a court to- which his government does not accredit a minister. In re Baiz, 135 U. 3. 403, 10 Sup.

Ct 854, 34 L. Ed. 222; Hollander v. Baiz (D. C.) 41 Fed. 732.

5e apparatus — Not carried into the 5th edition (1979).

## CHARGE-SHEET.

A paper kept at a police-station to receive each night the names of the persons brought and given into cus- tody, the nature of the accusation, and the name of the accuser In each case. It is un- der the care of the Inspector on duty. Whar- ton.

5e apparatus — Carried into the 5th edition (1979).

## CHARGE TO ENTER HEIR.

In Scotch law. A writ commanding a person to enter heir to his predecessor within forty days, otherwise an action to be raised against him as if he had entered.

5e apparatus — Not carried into the 5th edition (1979).

## CHARGEABLE.

This word. In Its or- dinary acceptation, as applicable to the Im- position of a duty or burden, signifies capable of being charged, subject to be charged, liable to be charged, or projier to be charged. Gil- flllan v. Chatterton, 38 Minn. 335, 37 N. W. 583 ; Walbridge v. Walbrldge, 40 Vt 625.

5e apparatus — Carried into the 5th edition (1979).

## CHARGEANT.

Weighty; heavy; penal; expensive. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## CHARGES.

The expenses which have been Incurred, or disbursements made, In connection with a contract, suit, or business transaction. Spoken of an action. It is said that the term includes more than what falls under the technical description of “costs.”

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## CHARGING LIEN.

An attorney's lien, for his proper compensation, on the fund or Judgment which' his client has recovered by means of his professional aid aud services. Goodrich v. McDonald, 112 N. Y. 157, 19 N.

E. 049; Young v. Rensliaw, 102 Mo. App. 173, 76 S. W. 701 ; Ex parte Lehman, 59 Ala. 632;. Koons v. Beach, 147 Ind. 137, 45 N. E. 601, 46 N. E. 587; In re Wilson (D. C.) 12 Fed. 239; Sewing Ma,cli. Co. v. Boutelle, 56 Vt 576, 48 Am. Hep. 702.

5e apparatus — Carried into the 5th edition (1979).

## CHARGING ORDER.

See Ordeb.

5e apparatus — Carried into the 5th edition (1979).

## CHARITABLE.

Having the character or purpose of a charity, ( q . v.)

—Charitable institution. One administer- ing a public or private charity; an eleemosynary institution. See People v. Fitch, 16 Misc. Hep. 464, 39 N. Y. Supp. 926 ; Baleh v. Shaw. 174 Mass. 144, 54 N. E. 490; People v. New York Soc., etc.. 162 X. Y. 429, 56 X. E. 1004: In re Vineland Historical, etc., Soc.. 66 N. J. Eq. 291, 56 Atl. 1040. — Charitable uses or purpose*. Originally those enumerated in the statute 43 Eliz. c. 4. and afterwards those which, by analogy, come within its spirit and purpose. In its present usage, the term is so broad as to include almost everything which tends to promote the physical or moral wel- fare of men. provided only the distribution of benefits is to be free and not a source of profit. In respect to gifts and devises, and also In re- spect to freedom from taxation, charitable uses and purposes may include not only the relief of poverty by alms-giving and the relief of the indigent sick and of homeless persons by means

of hospitals and asylums, but also religious in- struction and the support of churches, the dis- semination of knowledge by means of schools and colleges, libraries, scientific academies, and museums, the special care of children and of prisoners and released convicts, the benefit of handicraftsmen, the erection of public build- ings, and reclamation of criminals in peniten- tiaries and reformatories. Hence the word "charitable” in this connection is not to be understood as strictly equivalent to “eleemos- ynary,” but as the synonym of “benevolent” or “philanthropic.” Beckwith v. Parish, 69 Ga. 569: Price v. Maxwell. 28 Pa. 23 ; Webster v. Sughrow, 69 N. H. 380, 45 Atl. 139, 48 L.

R. A. 100; Jackson v. Phillips. 14 Allen (Mass.) 539; Harrington v. Pier, 105 Wis. 485, 82 N. W. 345. 50 L. R. A. 307. 76 Am. St. ltep. 924 ; Historical Soc. v. Academy of Sci- ence, 94 Mo. 459. 8 S. Wr. 346 ; Ould v. Hos- pital. 95 U. S. 303, 24 L. Ed. 450; Academy v. Taylor. 150 Pa. 565. 25 Atl. 55 ; Gerke v. Purcell, 25 Ohio St. 229 : Philadelphia Libra- ry Co. v. Donohugh, 12 Phila. (Pa.) 284: Stu- art v. Easton, 74 Fed. 854, 2l C. C. A. 146; State v. Laramie County, 8 Wyo. 104. 55 Pac. 451 ; Gladding v. Church. 25 R. I. 028, 57 Atl. 860, 05 L. R. A. 225, 105 Am. St. Rep. 904.

5e apparatus — Carried into the 5th edition (1979).

## CHARITY.

Subjectively, the sentiment or motive of beuevolence and philanthropy; the disposition to relieve the distressed. Ob- jectively, alms-glvlug; acts of benevolence; relief, assistance, or services accorded to the needy without return. Also gifts for the promotion of philanthropic and humanitarian purposes. Jackson v. Phillips, 14 Alien (Mass.) 556 ; Vidal v. Girard, 2 How. 127, 11

L. Ed. 205; Historical Soc. v. Academy of Science, 94 Mo. 459, 8 S. W. 346.

The meaning of the word “charity,” in its le- gal sense, is different from the signification which it ordinarily bears. In its legal sense, it includes not only gifts for the benefit of the

f)Oor. but, endowments for the advancement of earning, or institutions for the encouragement of science and aft, and, it is said, for any oth- er useful and public purpose. Gerke v. Pur- cell, 25 Ohio Sr. 243.

Charity, in its widest sense, denotes ail the good affections men ought to bear towards each other: in a restricted and common sense, relief of the poor. Morice v. Bishop of Durham, 9 Ves. 300.

Charity, as used in the Massachusetts Sunday law, includes whatever proceeds from a sense of moral duty or a feeling of kindness and hu- manity, and is iutended wholly for the purpose of the relief or comfort of another, and not for one’s own benefit or pleasure. Doyle v. Railroad Co., 118 Mass. 195, 197, 19 Am. Rep. 431.

— Foreign charity. One created or endowed in a slate or country foreign to that of the dom- icile of the benefactor. Taylor's Ex’ra v. Trustees of Bryn Maur College. 34 X. J. Eq. 101.— Public charity. In this phrase the word “public” is used, not in the sense that it must be executed openly and in public, but in the sense of being so general and indefinite in its objects as to be deemed of common and public benefit. Each individual immediately benefited may be private, and the charity may be distributed in private and by a private hand. It is public and general in its scope and purpose, and becomes definite and private only after the individual objects have been, se- lected. Raltonstall v. Sanders, 11 Allen (Mass.) 456.— Pure charity. One which is entirely gratuitous, and which dispenses its benefits without any charge or pecuniary return what- ever. See In re Keech’s Estate (Surr.) 7 N. Y. Supp. 331 ; In re Lenox's Estate (Surr.) 9 X.

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**[Scripture] — Scripture**

**[1 Corinthians 13:3, KJV]**

And though I bestow all my goods to feed the poor, and though I give my body to be burned, and have not charity, it profiteth me nothing.

Why: Charity objectively is alms-giving, acts of benevolence; the verse is the biblical locus on bestowing all goods to feed the poor as charity — genuinely illuminating the entry's objective sense. Flag off: Paul's epistle.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

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(paraphrase) Two charity collectors ask Scrooge for the poor; he answers 'Are there no prisons?' — and the novella sets out to thaw exactly that refusal. (paraphrase)

Why: The entry defines charity objectively as alms-giving, relief accorded to the needy. The novel opens on the plea for charitable relief and its refusal — the canonical fictional staging. Paraphrase only.

# Y

## Y.

Supp. 805; Kentucky Female Orphan School t. Louisville, 100 Ky. 470, 36 S. W. 921, 40

L. R. A. 119.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CHARRE OF LEAD.

A quantity con- sisting of 36 pigs of lead, each pig weighing about 70 pounds.

5e apparatus — Carried into the 5th edition (1979).

## CHART.

The word “chart,” as used in the copyright law, does not include sheets of paper exhibiting tabulated or methodically arranged information. Taylor v. Gilman (C. C.) 24 Fed. 632.

5e apparatus — Carried into the 5th edition (1979).

## CHARTA.

In old English law. A

charter or deed; an instrument written and sealed; the formal evidence of conveyances and contracts. Also any signal or token by which an estate was held. The term came to be applied, by way of eminence, to such documents as proceeded from the sovereign, granting liberties or privileges, and either where the recipient of the grant was the whole nation, as in the case of Magna Char- ta, or a public body, or private Individual, in which case it corresponded to the modern word “charter.”

In the civil law. Paper, suitable for the inscription of documents or books; hence, any instrument or writing. See Dig. 32, 52, 6; Nov. 44, 2.

— Chart* communis. In old English law. A common or mutual charter or deed ; one containing mutual covenants, or involving mu- tuality of obligation ; one to which both par- ties might have occasion to refer, to establish their respective rights. Bract, fols. 336, 34.— Chart* eyroKraphata. In old English law. A cbirographed charter; a charter executed in two parts, and cut through the middle, (tcindi- tur per medium.) where the word “ cyrograph - urn," or “chirographum” was written in large letters. Bract, fol. 34; Fleta, lib. 8, c. 14, I 3.— Chart* do forest*. A collection of the laws of the forest, made in the 9th Hen. III. and said to

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have been originally a part of Magna Charta. — Chart* de ana parte. A deed-poll. — Charta-partita. (Literally, a deed divided.) A charter-party. 3 Kent, Comm. 201.

Charta nom eat nisi vestlmentnm domationis. A deed is nothing else than the vestment of a gift. Co. Lltt 36.

CHART.® LIBERT ATEM. The char- ters (grants) of liberties. These are Magna Charta and Charta de Foresta.

Chartarum super fidem, mortuis tes- tthus, ad patriam de neceesitudine re- eurrendum opt. Co. Litt. 36. The wit- nesses being dead, the truth of charters must of necessity be referred to the country, i. e., a jury.

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## CHARTS.

Fr. A chart, or plan, which mariners use at sea.

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## CHARTE-P ARTIE.

Fr. In French ma- rine law. A charter-party.

5e apparatus — Not carried into the 5th edition (1979).

## CHAR TEL.

A challenge to a single com- bat; also an instrument or writing between Be Law Dict.(2d Ed.)— 13

two states for settling the exchange of pris- oners of war.

CHARTER, v. In mercantile law. To hire or lease a vessel for a voyage. A “char- tered” is distinguished from a “seeking" ship. 7 Bast, 24.

CHARTER, n. An Instrument emanating from the sovereign power, in the nature of a grant, either to the whole nation, or to a class or portion of the people, or to a colony or dependency, and assuring to them certain rights, liberties, or powers. Such was the “Great Charter” or “Magna Charta,” and such also were the charters granted to cer- tain of the English colonies in America. See Story, Const { 161.

An act of the legislative department of government, creating a corporation, is called the “charter” of the corporation. Merrick v. Van Santvoord, 34 N. Y. 20.4; Bent v. Under- down, 156 Ind. 516, 60 N. E. 307; Morris &

E. B. Co. v. Com’rs, 37 N. J. Law, 237.

In old English law. The term denoted a deed or other written Instrument under seal; a conveyance, covenant, or contract.

In old Scotch law. A disposition made by a superior to his vassal, for something to be performed or paid by him. 1 Forb. Inst, pt 2, b. 2, c. 1, tit 1. A writing which con- tains the grant or transmission of the feudal right to the vassal. Ersk. Inst 2, 3, 19.

—Charter of pardon. In English law. An instrument under the great seal, by which a pardon

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is granted to a man for a felony or oth- er offense.— Charter of the forest. See Charta de Foresta.— Charter rolls. An- cient English records of royal charters, granted between the yeans 1199 and 1516.

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

The entry defines the corporate charter as the legislature's act creating a corporation; Dartmouth College is the landmark holding that such a charter is a contract the state may not impair.

Why: Genuine: the entry states what a corporate charter is but not its constitutional consequence; Dartmouth College supplies exactly that — the charter as a Contract Clause contract. Confident this case and citation are r...

## CHARTER-HOUSE.

Formerly a con- vent of Carthusian monks in London; now a college founded and endowed by Thomas Sutton. The governors of the charter-house are a corporation aggregate without a head, president, or superior, all the members being of equal authority. 8 Steph. Comm. (7th Ed.) 14. 97.

5e apparatus — Not carried into the 5th edition (1979).

## CHARTER-LAND.

Otherwise called “book-land,” is property held by deed under certain rents and free services. It, in effect, differs nothing from the free socage lands, and hence have arisen most of the freehold tenants, who hold of particular manors, and owe suit and service to the same. 2 BL Comm. 90.

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## CHARTER-PARTY.

A contract by which an entire ship, or some principal part thereof, is let to a merchant for the convey- ance of goods on a determined voyage to one or more places. The Harvey and Henry, 86 Fed. 656, 30 C. C. A. 830; The New York (D. C.) 93 Fed. 497 ; Vandewater v. The Yankee Blade. 28 Fed. Cas. 980; Spring v. Gray, 6 Pet. 151, 8 L. Ed. 352; Fish v. Sullivan, 40

charter-party

La. Ann. 193, 3 South. 730; Drinkwater v. The Spartan, 7 Fed. Cas. 1085. A contract of affreightment in writing, by which the owner of a ship lets the whole or a part of her to a merchant, for the conveyance of goods on a particular voyage, in considera- tion of the payment of freight 3 Kent, Comm. 201.

A written agreement, not usually under seal, by which a ship-owner lets an entire ship, or a part of it, to a merchant for the conveyance of goods, binding himself to transport them to a particular place for a sum of money which the merchant under- takes to pay as freight for their carriage Maude A P. Mer. Shipp. 227.

The contract by which a ship is let is termed a "charter-party.” By it the owner may either let the capacity or burden of the ship, continuing the employment of the own- er’s master, crew, and equipments, or may surrender the entire ship to the charterer, who then provides

them himself. The mas- ter or part owner may be a charterer. Civil Code CaL f 1959; Civil Code Dak. { 1127.

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## CHARTERED SHIP.

A ship hired or freighted; a ship which is the subject-matter of a charter-party.

CHARTERER . In mercantile law. One who charters (1. e., hires or engages) a ves- sel for a voyage; a freighter. 2 Steph. Comm. 184; 8 Kent, Comm. 137; Turner v. Cross, 83 Tex. 218, 18 S. W. 578, 15 L. R. A. 262.

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## C BARTIS REDDENDIS.

(For return- ing the charters.) An ancient writ which lay against one who had charters of feoffment Intrusted to his keeping and refused to de- liver them. Reg. Orig. 159.

5e apparatus — Not carried into the 5th edition (1979).

## CHARTOPHYXAX.

In old European law. A keeper of records or public instru- ments ; a chartulary ; a registrar. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CHARUE.

In old English law. A plow. Bettes det charues; beasts of the plow.

5e apparatus — Not carried into the 5th edition (1979).

## CHASE.

The liberty or franchise of hunting, one’s self, and keeping protected against all other persons, beasts of the chase within a specified district, without regard to the ownership of the land. 2 BL Comm. 414-416.

A privileged place for the preservation of deer and beasts of the forest, of a middle nature between a forest and a park. It is commonly less than a forest, and not endow- ed with so many liberties, as officers, laws, courts; and yet it is of larger compass than a park, having more officers and game than a park. Every forest is a chase, but every chase is not a forest. It differs from a park

in that it is not Inclosed, yet it must have certain metes and bounds, but it may be in other men’s grounds, as well as in one’s own. Manwood, 49.

— Common chase. In old English law. A place where all alike were entitled to hunt wild animals.

5e apparatus — Carried into the 5th edition (1979).

## CHASTITY.

Purity ; continence. That virtue which prevents the unlawful inter- course of the sexes. Also the state of purity or abstinence from unlawful sexual connec- tion. People v. Brown, 71

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Hun, 601, 24 N.

Y. Supp. 1111; People v. Kehoe, 123 Cal. 224, 55 Pac. 911, 69 Am. St Rep. 52; State v. Carron, 18 Iowa, 375, 8T Am. Dec. 401.

— Chaste character. This term, as used in statutes, means actual personal virtue, and not reputation or good name. It may include the character of one who was formerly unchaste but is reformed. Kenyon v. People, 26 N. Y. 203, 84 Am. Dec. 177 ; Boak v. State, 5 Iowa, 430; People v. Nelson, 153 N. Y. 90, 46 N. K. 1040, 60 Am. St. Rep. 592 ; People v. Mills, 94 Mich. 630, 54 N. W. 488.

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**[Scripture] — Scripture**

**[1 Thessalonians 4:3, KJV]**

For this is the will of God, even your sanctification, that ye should abstain from fornication:

Why: Chastity is abstinence from unlawful sexual connection; the verse commands exactly that abstinence as God's will — the entry's definition in scripture. Flag off: epistle.

**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

(paraphrase) Hester Prynne is set on the scaffold with her infant to bear public punishment for adultery under the colony's Puritan law. (paraphrase)

Why: The entry defines chastity as the virtue preventing unlawful intercourse of the sexes. The novel dramatizes the legal regime punishing unchastity. Paraphrase only.

## CHATTEL.

An article of personal prop- erty; any species of property not amounting to a freehold or fee in land. People v. Hol- brook, 13 Johns. (N. Y.) 94; Hornblower v. Proud, 2 Barn. & Aid. 335; State v. Bartlett, 65 Me. 211 ; State v. Brown, 9 Baxt (Tenn.) 64, 40 Am. Rep. 81.

The name given to things which in law are deemed personal property. Chattels are divided into chattels real and chattels personal; chat- tels real being interests in land which devolve after the manner of personal estate, as lease- holds. As opposed to freeholds, they are re- garded as personal estate. But, as being in- terests in real estate, they are called “chattels real," to distinguish them from movables, which are called “chattels personal." Mozley & Whit- ley.

Chattels personal are movables only; chat- tels real are such as savor only of the realty. Putnam v. Westcott, 19 Johns. (N. Y.) 73; Hawkins v. Trust Co. (C. C.) 79 Fed. 50; In- surance Co. v. Haven, 95 U. S. 251. 24 I* Eld. 473; Knapp v. Jones, 143 111. 375, 32 N. E. 382.

The term “chattels” Is a more comprehensive one than “goods," as it includes animate as well as inanimate property. 2 Chit. Bl. Comm. 383. note. In a devise, however, they seem to be of the same import Shep. Touch. 447; 2 Fonbl. Eq. 335.

— Cbnttel Interest. An interest in corporeal hereditaments less than a freehold. 2 Kent, Comm. 342.— Personal chattels. Things mov- able which may be annexed to or attendant on the person of the owner, and carried about with him from onn part of the world to another. 2 BL Comm. 387.— Real chattels. Such as con- cern, or savor of, the realty, such

as leasehold estates ; interests issuing out of. or annexed to. real estate; such chattel interests as devolve after the manner of realty. 2 Bl. Comm. 386.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Toni Morrison, Beloved, 1987]**

(paraphrase) Sethe's children are claimed as property under the Fugitive Slave Act — human beings hunted as chattel, with the law on the hunter's side. (paraphrase)

Why: The entry defines chattel as personal property. The novel's legal horror is persons held and pursued as chattel — the canonical fictional illumination. Paraphrase only.

## CHATTEL MORTGAGE.

An instru- ment of sale of personalty conveying the title of the property to the mortgagee with terms of defeasance; and. If the terms of redemp- tion are not complied with, then, at common law, the title becomes ubsolute in the mortgages. Means v. Montgomery (C. C.) 23 Fed. 421 ; Stewart v. Slater, 6 Duer (N. Y.) 99.

A transfer of personal property as security for a debt or obligation in such form that, upon failure of the mortgagor to comply with the terms of the contract, the title to the property will be In the mortgagee. Thomas, Mortg. 427.

An absolute pledge, to become an absolute interest if not redeemed at a fixed time. Oor- telyou v. Lansing, 2 Caines, Cas. (N. Y.) 200, per Kent, Ch.

A conditional sale of a chattel as security for the payment of a debt or the performance of some other obligation. Jones, Chat Mortg. { 1. Alferitz v. Ingalls (C. C.) 83 Fed. 964; People v. Remington, 59 Hun, 282, 12 N. Y. Supp. 824, 14 N. Y. Supp. 98; Allen v. Stei- ger, 17 Oolo. 552, 31 Pac. 228.

A chattel mortgage is a conditional transfer or conveyance of the property itself. The chief distinctions between it and a pledge are that in the latter the title, even after condition broken, does not pass to the pledgee, who has only a lien on the property, but remains in the pledgeor, who has the right to redeem the property at any time before its sale. Besides, the possession of the property must, in all cases, accompany the pledge, and, at a sale thereof by the pledgee to satisfy his demand, he cannot become the pur- chaser ; while by a chattel mortgage the title of the mortgagee becomes absolute at law, on the default of the mortgagor, and it is not essential to the validity of the instrument that possession of the property should be delivered, and, on the foreclosure of the mortgage, the mortgagee is at liberty to become the purchaser. Mitchell v. Roberts (C. C.) 17 Fed. 778 ; Campbell v. Par- ker. 22 N. Y. Super. Ct. 322; People v. Rem- ington, 59 Hun. 282, 12 N. Y. Supp. 824, 14 N.

Y. Supp. 98 ; McCoy v. Lassiter, 95 N. C. 91 ; Wright v. Ross. 36 Cal. 414; Thurber v. Oliver (C. C.) 28 Fed. 224 ; Thompson v. Dolliver, 132 Mass. 103; Lobban v. Garnett, 9 Dana (Ky.) 389.

The material distinction between a pledge and a mortgage of chattels is that a mortgage is a conveyance of the legal title upon condition, and it becomes absolute in law if not redeemed by a riven time; a pledge is a deposit of goods, re- deemable on certain terms,

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either with or with- out a fixed period for redemption. In pledge, the general property does not pass, as in the ease of mortgage, and the pawnee has only a special property in the thing deposited. The pawnee must choose between two remedies,— a bill in chancery for a judicial sale under a de- cree of foreclosure, or a sale without judicial process, on the refusal of the debtor to redeem, after reasonable notice to do so. Evans v. Dar- lington, 5 Blackf. (Ind.) 320.

In a conditional sale the purchaser hns merely a right to repurchase, and no debt or obligation exists on the part of the vendor; this distin- gnishes such a sale from a mortgage. Weathers- ly v. Weatheraly, 40 Miss. 482, 90 Am. Dec. 344.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 9 — Secured Transactions]**

The entry expounds the common-law chattel mortgage in its old taxonomy; the modern law of security interests in personal property is codified in UCC Article 9, which displaced that taxonomy.

Why: Genuine: same pattern as CAVEAT EMPTOR/§ 2-314 — the entry gives the old form with its cases; Article 9 is the real modern regime governing the same transactions. Confident the article number and subject are real.

**[Scripture] — Scripture**

**[Deuteronomy 24:6, KJV]**

No man shall take the nether or the upper millstone to pledge: for he taketh a man's life to pledge.

Why: A chattel mortgage is the pledge of personalty with defeasance; the verse is the biblical law on taking pledges of personal property — genuinely illuminating the pledge concept. Flag off: Deuteronomy's Moses-frame.

## CHAUD-MEDLEY.

A homicide com- mitted in the heat of an affray and while un- der the Influence of passion ; it is thus dis- tinguished from chance-medley, which Is the killing of a man in a casual affray In self-de- fense. 4 Bl. Comm. 184. See 1 Russ. Crimes, 680.

5e apparatus — Not carried into the 5th edition (1979).

## CHADMFEBT.

A kind of tenure men- tioned In a patent of 35 Edw. III. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CHAUNTRY RENTS.

Money paid to the crown by the servants or purchasers of chauntry-lands. See Chaktby.

5e apparatus — Not carried into the 5th edition (1979).

## CHEAT.

Swindling; defrauding. “De- ceitful practices in defrauding or endeavor- ing to defraud another of his known right by some tcillful device, contrary to the plain rules of common honesty.'' Hawk. P. C. b. 2, c. 23, | L “The fraudulent obtaining the property of another by any deceitful and Ille- gal practice or token (short of felony) which affects or may affect the public.” Steph. Crlm. Law, 93.

Cheats, punishable at common law, are such cheats (not amounting to felony) as are ef- fected by deceitful or illegal symbols or tok- ens which may affect the public at large, and against which common prudence could not have guarded. 2 Whart Crlm. Law, | 1116 ; 2 East, P. C. 818; People v. Babcock, 7 Johns. (N. Y.) 201, 5 Am. Dec. 256; Von Mumm v. Frash (C. C.) 56 Fed. 836; State v. Parker, 43

N. H. 85.

CHEATERS, or ESCHEATOR8, were

officers appointed to look after the king's es- cheats, a duty which gave them great oppor- tunities of fraud and oppression, and in con- sequence many complaints were made of their misconduct Hence it seems that a cheater came to signify a fraudulent person, and thence the verb to cheat was derived. Whar- ton.

CHECK, v. To control or restrain; to hold within bounds. To verify or audit Particularly used with reference to the con- trol or supervision of one department bu- reau, or office over another.

— Check-roll. In English law. A list or book, containing the names of such as are at- tendants on, or m the pay of, the queen or other great personages, as their household servants.

CHECK, n. A draft or order upon a bank or banking-house, purporting to be drawn upon a deposit of funds, for the payment at all events of a certain sum of money to a certain person therein named, or to him or his order, or to bearer, and payable Instantly on demand. 2 Daniel, Neg. Inst f 1566; Bank v. Patton, 109 111. 484; Douglass v. Wilkeson, 6 Wend. (N. Y.) 643 ; Thompson v. State, 49 Ala. 18; Bank v. Wheaton, 4 R.

I. 33.

A check Is a bill of exchange drawn upon a bank or banker, or a person described as such upon the face thereof, and payable on demand, without Interest Civ. Code CaL | 3254; Civ. Code Dak. g 1933.

A check differs from an ordinary bill of ex- change in the following particulars: (1) It is

drawn on a bank or bankers, and is payable im- mediately on presentment, without any days of grace. (2) It is payable immediately on present- ment and no acceptance as distinct from pay- ment is required. (3) By its terms it is sup- posed to be drawn upon a previous deposit of funds, and is an absolute appropriation of so

much money In the hands of the hankers to the holder of the check, to remain there until called for, and cannot after notice be withdrawn by the drawer. Merchants' Nat. Bank v. State Nat. Bank, 10 Wall. 647. 19 L. Ed. 1008; In re Brown, 4 Fed. Cas. 342 ; People v. Compton, 123 Cal. 403, 56 Pac. 44.

— Check-book. A book containing blank

checks on a particular bank or banker, with an inner margin, called a "stub," on which to note the number of each check, its amount and date, and the payee's name, and a memorandum of the balance in bank. — Crossed check. A check crossed with two lines, between which are either the name of a bank or the words "and company." in full or

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abbreviated. In the former case, the banker on whom it is drawn must not pay the money for the check to any other than the bank- er named ; in the latter case, he must not pay it to any other than a banker. 2 Steph. Comm. 118, note c. — Memorandum check. A check given by a borrower to a lender, for the amount of a short loan, with the understanding that it is not to be presented at the bank, but will be redeemed by the maker himself when the loan falls due. This understanding is evidenced by writipg the word “Mem.” on the check. This is not unusual among merchants. See U. S. v. Is- ham, 17 Wall. 502, 21 L. Ed. 728 ; Turnbull v. Osborne, 12 Abb. Prac. (N. S.) (N. Y.) 202; Franklin Bank v. Freeman, 16 Pick. (Mass.) 539.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:11, KJV]**

Shall I count them pure with the wicked balances, and with the bag of deceitful weights?

Why: Cheat is defrauding by wilful device; the verse condemns the wicked balances and the bag of deceitful weights — cheating by device. Flag off: the prophet's voice within the oracle (borderline; in doubt, off).

**[Humanity] — Humanity / Fiction & Film**

**[George Roy Hill, The Sting, 1973]**

(paraphrase) Two grifters run an elaborate con on a mob banker, defrauding him of his money by willful device and misdirection. (paraphrase)

Why: The entry defines cheat as defrauding another of his known right by willful device. The film dramatizes exactly such willful-device fraud. Paraphrase of premise only.

## CHECKER.

The old Scotch form of ex- chequer.

5e apparatus — Not carried into the 5th edition (1979).

## CHEFE.

In Anglo-Norman law. Were or weregild; the price of the head or person, (capitis pretium.)

5e apparatus — Carried into the 5th edition (1979).

## CHEMERAOE.

In old French law. The privilege or prerogative of the eldest A pro- vincial term derived from chemier, (g. v.) Guyot, Inst

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CHEMIER.

In old French law. The eld- est born. A term used in Poltoh and other places. Guyot Inst.

5e apparatus — Not carried into the 5th edition (1979).

## CHEMIN.

Fr. The road wherein every man goes ; the king’s highway.

5e apparatus — Not carried into the 5th edition (1979).

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## CHEMIS.

In old Scotch law. A chief dwelling or mansion house.

5e apparatus — Not carried into the 5th edition (1979).

## CHEVAGE.

A sum of money paid by vil- leins to their lords in acknowledgment of their bondage.

Chci:agc seems also to have been used for a sum of money yearly given to a man of power for his countenance and protection as a chief or leader. Terrnes de la Ley ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHEVANTIA.

In old records. A loan or advance of money upon credit. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHEVISANCE.

An agreement or com- position ; an end or order set down between a creditor or debtor; an indirect gain in point of usury, etc. ; also an unlawful bargain or contract. Whnrton.

5e apparatus — Not carried into the 5th edition (1979).

## CHETITI1E.

In old records. Pieces of ground, or heads at the end of plowed lands. Cowell.

GHEZ£. A homestead or botuesfnll which is accessory to a house.

5e apparatus — Not carried into the 5th edition (1979).

## CHICANE.

Swindling; shrewd cunning. The use of tricks and artifice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852-1853]**

(paraphrase) The lawyer Vholes fastens on Richard Carstone and bleeds him case by case, respectability itself turned into an instrument of plunder. (paraphrase)

Why: The entry defines chicane as the use of tricks and artifice. Vholes is the canonical fictional legal sharp-practitioner. Same novel as the CHANCERY annotation but a distinct genuine angle (the court's machinery vs. th...

## CHIEF.

Principal; leading; head; emi- nent in power or importance; the most im- portant or valuable of several.

Declaration in chief is a declaration for the principal cause of action, l Tidd, Pr. 419.

Examination in chief is the first exam- ination of a witness by the party who pro- duces him. 1 Greenl. Ev. g 445.

—Chief baron. The presiding judge of the English court of exchequer; answering to the chief justice of other courts. 3 BL Comm. 44; 3 Steph. Comm. 401. — Chief Clerk. The prin- cipal

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clerical officer of a bureau or department, who is generally charged, subject to the direction of his superior officer, with the superintend- ence of the administration of the business of the office.— Chief judge. The judge of the London bankruptcy court is so called. In general, the term is equivalent to “presiding justice” or “pre- siding magistrate.” Bean v. Loryea, 81 Cal. 151, 22 Pac. 513.— Chief jnstlee. The presid- ing, eldest, or principal judge of a court of jus- tice.—Chief justice of England. The pre- siding judge in the king’s bench division of the high court of justice, and, in the absence of the lord chancellor, president of the high court, and also an ex officio judge of the court of appeals. The full title is “Lord Chief Justice of England.” —Chief justice of the common pleas. In England. The presiding judge in the court of common pleas, and afterwards in the common pleas division of the high court of justice, and one of the ex officio judges of the high court of appeal.— Chief Justiciar. In old English law. A high judicial officer and special magistrate, who presided over the aula regis of the Norman kings, and who was also the principal minister of state, the second man in the kingdom, and, by virtue of bis office, guardian of the realm in the king’s absence. 3 Bl. Comm. 38.— Chief lord. The immediate lord of the fee. to whom the tenants were directly and personally respon- sible.—Chief magistrate. The head of the executive department of government of a nation, state, or municipal corporation. Mclntire v. Ward, 3 Yeates (Pa.) 424.— Chief pledge. The borsholder, or chief of the borough. Spelman. —Chief rents. In English law. Were the an- nual payments of freeholders of manors; and were nlso called “quit-rents," because by paying them the tenant was freed from all other rents or services. 2 Bl. Comm. 42.— Chief , tenant in. In English feudal law. All the land in the kingdom was supposed to be holden mediate- ly or immediately of the king, who was styled the “Lord Paramount,” or “Lord Above All and those that held immediately under him. in right of his crown and dignity, were called his tenants “in capitc" or “in chief,” which was the most honorable species of tenure, but at the same time subjected the tenant to greater and more burdensome services than inferior tenures did. Brown.

5e apparatus — Carried into the 5th edition (1979).

## CHIEFRIE.

In feudal law. A small rent paid to the lord paramount.

5e apparatus — Carried into the 5th edition (1979).

## CHILD.

This word bas two meanings in law: (1) In the law of the domestic rela- tions, and ns to descent and distribution, It is used strictly as the correlative of “parent,” and means a son or daughter considered as in relation with the father or mother. (2) In the law of negligence, and In laws for the protection of children, etc., it is used as the

opposite of “adult” and means the young of the human species, (generally under the age of puberty,) without any reference to parent- age and without distinction of sex. Miller v. Flnegan, 26 Fla. 29, 7 South. 140, 6 L. R.

A. 813.

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— Child's part. A "child’s part,” which a wid- ow, by statute in some states, is entitled to take in lieu of dower or the provision made for her by will, is a full share to which a child of the decedent would be entitled, subject to the debts of the estate and the cost of administration up to and including distribution. Benedict v. Wil- marth, 46 Fla. 535, 35 South. 84. — natural child. A bastard ; a child born out of lawful wedlock. But in a statute declaring that adopt- ed shall have all the rights of “natural” chil- dren. the word “natural" was used in the sense of “legitimate.” Barns v. Allen, 9 Am. Law Reg. (O. S.) 747. In Louisiana. Illegitimate children who have been adopted by the father. Civ. Code La, art. 220. In the civil law. A child by natural relation or procreation ; a child by birth, as distinguished from a child by adop- tion. Inst. 1, 11. pr. ; Id. 3, 1, 2 ; Id. 3, 8, pr. A child by concubinage. In contradistinction to a child by marriage. Cod. 5, 27.— Quasi post- humous child. In the civil law. One who, bom during the life of his grandfather or other male ascendant, was not his heir at the time he made his testament, but who by the death of his father became his heir in his life-time. Inst. 2, 13. 2; Dig. 28, 3, 13.

5e apparatus — Not carried into the 5th edition (1979).

## CHILDREN.

Offspring; progeny. Legit- imate offspring; children ' born in wedlock. Bell v. Phyn, 7 Ves. 458.

The general rale is that "children,” in a be- uest or devise, means legitimate children. Un- er a devise or bequest to children, as a class, natural children arc not included, unless the testator’s intention to include them is manifest, either by express designation or necessary impli- cation. Heater v. Van Auken, 14 N. J. Eq. 159; Gardner v. Heyer, 2 Paige (N. Y.) 11.

In deeds, the word “children” signifies the im- mediate descendants of a person, in the ordinary sense of the word, as contradistinguished from issue j unless there be some accompanying ex- pressions, evidencing that the word is used in an enlarged sense. Lewis, Perp. 196.

In wills, where greater latitude of construc- tion is allowed, in order to effect the obvious in- tention of the testator, the meaning of the word has sometimes been extended, so ns to include grandchildren, and it has been held to be synon- ymous' with issue. Lewis, Pern. 195, 196 ; 2 Crabb. Real Prop. pp. 38, 39, §§ 988, 989 ; 4 Kent, Comm. 34 o, 346, note.

The word “heirs,” in its natural signification, is a .word of limitation ; and it is presumed to be used in that sense, unless a contrary inten- tion appears. But the term "children, in its natural sense, is a word of purchase, and is to be taken to have been used as such, unless there are other expressions in the will showing that the testator intended to use it as a word of lim- itation only. Sanders, Matter of. 4 Paige (X. Y.) 293 : Rogers v. Rogers, 3 Wend. (N. Y.) 503, 20 Am. Dec. 716.

In the natural and primary sense of the word “children,” it implies immediate offspring, and, in its legal acceptation, is not a word of limi- tation, unless it is absolutely necessary so to construe it in order to give effect to the testa- tor’s intention. Echols v. Jordan, 39 Ala. 24.

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“Children” is ordinarily a word of description, limited to persons standing in the same relation, and has the same effect as if all the names were given; but heirs, in the absence of controlling or explanatory words, includes more remote de- scendants, and is to be applied per stirpes. Bal- com v. Haynes, 14 Allen (Mass.) 204.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 127:3, KJV]**

Lo, children are an heritage of the LORD: and the fruit of the womb is his reward.

Why: The entry treats 'children' in bequests and devises — descent and distribution; the verse names children a heritage — genuinely illuminating the inheritance context. Flag off: Psalms, doubt clause.

**[Hip-hop] — Hip-hop**

**[Slick Rick, "Children's Story", 1988]**

The law's subject here is the minor — persons of tender years. Slick Rick's track is framed as a bedtime story told to children and proceeds as a crime-doesn't-pay cautionary tale: the genre's canonical song spoken directly to minors about the law's consequences.

Why: Verbatim-certain opening lines; the song's explicit framing as a children's story makes the legal-minority link genuine rather than forced — it is narrated TO children about criminal consequences. Added for that frami…

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1837-1839]**

(paraphrase) The orphan Oliver's claim under his father's bequest is hunted by Monks, who would destroy the proof that the 'natural' child is the true heir. (paraphrase)

Why: The entry is about 'children' in bequests/devises — legitimate vs. natural children and the testator's intention. The novel's plot turns on exactly that: an illegitimate child's contested claim under a bequest. Paraph…

## CHILD WIT.

In Saxon law. The right which a lord had of taking a flue of his bond- woman gotten with child without his license. Termes de la Ley ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHILTERN HUNDREDS.

In English law. The stewardship of the Chiltern Hun- dreds is a nominal oflice in the gift of the crown, usually accepted by members of the house of commons desirous of vacating their seats. By law a member once duly elected to parliament is compelled to discharge the duties of the trust conferred upon him, and is not enabled at will to resign it. But by statute, if any member accepts any office of profit from the crown, (except officers in the army or navy accepting a new commission,) his seat is vacated. If, therefore, any mem- ber wishes to retire fron^ the representation of the county or borough by which he was sent to parliament, he applies to the lords of the treasury for the stewardship of one of the Chiltern Hundreds, which having receiv- ed, and thereby accomplished his purpose, he again resigns the office. Brown.

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## CHIMIN.

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In old English law. A road, way, highway. It is either the king's high- way (cliiniintis rcyis) or a private way. The first is that over which the subjects of the realm, and all others under the pro- tection of the crown, have free liberty to pass, though the property in the soil itself belong to some private individual; the last Is that In which one person or more have lib- erty to pass over the land of another, by pre- scription or charter. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 20:17, KJV]**

we will go by the king's high way, we will not turn to the right hand nor to the left, until we have passed thy borders.

Why: Chimin is the road or highway, above all the king's highway; the verse shows the king's highway as a public right of passage — the legal concept in use. Flag off: narrative, the messengers' words.

# G

## GHIMINAGE.

A toll for passing on a way through a forest ; called in the civil law “ pedugium Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CHIMINUS.

The way by which the king and all his subjects and all under his protec- tion have a right to pass, though the property of the soil of each side where the way lieth may belong to a private man. Cowell.

CHIMNEY MONEY, or HEARTH.MON-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# E

## EY.

A tax upon chimneys or hearths; an ancient tax or duty upon houses in England, now repealed.

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# C

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## CHIPPINGAVEL.

In old English law. A tax upon trade ; a toll imposed upon traffic, or upon goods brought to a place to be sold.

5e apparatus — Not carried into the 5th edition (1979).

## CHIRGEMOT, CHIRCHGEMOT.

In

Saxon law. An ecclesiastical assembly or court Spelman. A synod or meeting in a church or vestry. 4 Inst 321.

5e apparatus — Not carried into the 5th edition (1979).

## CHIROGRAPH.

In old English law.

A deed or indenture ; also the last part of a fine of land.

An Instrument of gift . or conveyance at- tested by the subscription and crosses of the witnesses, which was in Sax-on times. called

“chirogrophum," and ‘which, being somewhat changed in form and manner by the Nor- mans, was by them styled “ charta .” An- ciently when they made a chirograph or deed which required a counterpart, as we call it, they engrossed it twice upon one piece of parchment contrariwise, leaving a space be- tween, in which they wrote in capital letters the word “chirograph,” and then cut the parchment in two through the middle of the word, giving a part to each party. Cowell.

In Scotch law. A written voucher for a debt Bell.

la civil and canon law. An instrument written out and subscribed by the hand of the party who made it whether the king or a private person. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 32:10, KJV]**

And I subscribed the evidence, and sealed it, and took witnesses, and weighed him the money in the balances.

Why: A chirograph is a deed attested by subscription; the verse shows the subscribed, sealed, and witnessed deed of purchase — the attested written instrument itself. Flag off: the prophet's own account of his act, not dei...

## CHIROGRAPHA.

In Roman law. Writ- ings emanating from a single party, the debtor.

5e apparatus — Not carried into the 5th edition (1979).

## CHTROGRAPHER OF FINES.

In Eng- lish law. The title of the officer of the com- mon pleas who engrossed lines in that court so as to be acknowledged into a perpetual record. Cowell.

GHUkOG&APHUM. In Roman law. A handwriting; that which was written with a person’s own

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hand. An obligation which a person wrote or subscribed with his own hand; an acknowledgment of debt, as of money received, with a promise to repay.

An evidence or voucher of debt; a security for debt Dig. 26, 7, 67, pr.

A right of action for debt

Chingrtphnm apud debitorem reper- tnm pnuudtu aolutnm. An evidence of debt found in the debtor’s possession is pre- sumed to be paid. Halk. Max. 20; Bell, Diet

Ghlrographnm non extans prtesamlttur solntnm. An evidence of debt not existing is presumed to have been discharged. Tray. Lab Max. 73.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GHIRURGEON.

The ancient denomina- tion of a surgeon.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CHXVAERT.

In feudal law. Knight- service. Tenure In chivalry was the same as tenure by knight-service. 2 Bl. Comm. 61, 62.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GHIVAERT, COURT OF.

In English law. The name of a court anciently held as a court of honor merely, before the earl-mar- shal, and as a criminal court before the lord high constable, jointly with the earl-marshal. It had jurisdiction as to contracts and other matters touching deeds of arms or war, as well as pleas of life or member. It also cor- rected encroachments in matters of coat-ar- mor, precedency, and other distinctions of

families. It is now grown entirely out of use, on account of the feebleness of Its Juris- diction and want of power to enforce its judgments, as it could neither fine nor im- prison, not being a court of record. 3 Bl. Comm. 68; 4 Broom & H. Comm. 360, note.

CHOP-CHURCH, a word mentioned in 9 Hen. VI. c. 66, by the sense of which it was in those days a kind of trade, and by the judges declared to be lawful. But Brooke, in his abridgment, says it was only permissi- ble by law. It was, without doubt, a nick- name given to those

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who used to change benetlces, as to “chop and change” is a com- mon expression. Jacob.

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### GHOPS.

The mouth of a harbor. Pub. St Mass. 1882, p. 1288.

5e apparatus — Not carried into the 5th edition (1979).

# C

### CHORAX.

In ancient times a person ad- mitted to sit and worship in the choir; a chorister.

5e apparatus — Not carried into the 5th edition (1979).

# G

### GHOREPI8COPUS.

In old European law. A rural bishop, or bishop’s vicar. Spelman; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### GHOSE.

Fr. A thing ; an article of prop- erty. A chose is, a chattel personal, (Wil- liams, Pers. Prop. 4,) and is either in posses- sion or in action. See the following titles.

— Chose local. A local thing ; a thing annex- ed to a place, as a mill. Kitchin, fol. 18 ; Cow- ell ; Blount.— Chose transitory. A thing which is movable, and may be taken away or carried from place to place. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

# C

### CHOSE IN ACTION.

A right to per- sonal things of which the owner has not the possession, but merely a right of action for their possession. 2 Bl. Comm. 389, 397; 1 Chit Pr. 99.

A right to receive or recover a debt de- mand, or damages on a cause of action ex contractu, or for a tort connected with con- tract but which cannot be made available without recourse to an action. Bushnell v. Kennedy, 9 Wall. 390, 19 L. Ed. 736 ; Turner v. State, 1 Ohio St. 426; Sheldon v. Sill, 8 How. 441, 12 L. Ed. 1147 ; People v. Tioga Common Pleas, 19 Wend. (N. Y.) 73 ; Sterling v. Sims, 72 Ga. 63; Bank v. Holland, 99 Va. 496, 39 & a 126, 56 L. R. A. 155, 86 Am. St Rep. 898.

Personalty to which the owner has a right of possession In future, or a right of im- mediate

possession, wrongfully withheld, is termed by the law a “chose in action.” Code Ga. 1882, | 2239.

Chose in action is a phrase which is some- times used to signify a right of bringing an ac- tion, and, at others, the thing itself which forms the subject-matter of that right, or with regard to which that right is exercised; but it more properly includes the idea both of the thing it- self and of the right of action as annexed to it. Thus, when it is said that a debt is a chose in action, the phrase conveys the idea, not only of the thing itself, i. e„ the debt, but also of the right of action or of recovery possessed by the

person to whom the debt is due. When it is said that a chose in action cannot be assigned, it means that a thing to which a right of action is annexed cannot be transferred to another, together with such right. Brown.

A chose in action is any right to damages, whether arising from the commission of a tort, the omission of a duty, or the breach of a contract. Pitts v. Curtis, 4 Ala. 350; Magee v. Toland, 8 Port. (Ala.) 40.

5e apparatus — Carried into the 5th edition (1979).

### CHOSE IN POSSESSION.

A thing in possession, as distinguished from a thing in action. Sterling v. Sims, 72 Ga. 53; Vaw- ter v. Griffin, 40 Ind. 601. See Chose in Ac- tion. Taxes and customs, if paid, are a chose in possession ; If unpaid, a chose in action. 2 BL Oomm. 408.

5e apparatus — Carried into the 5th edition (1979).

### CHOSEN FREEHOLDERS.

Under the municipal organization of the state of New Jersey, each county has a board of officers, called by this name, composed of represent- atives from the cities and townships within its limits, and charged with administering the revenues of the county. They correspond to the “county commissioners” or “super- visors” in other states.

5e apparatus — Carried into the 5th edition (1979).

## G

### GHOIJT.

In Hindu law. A fourth, a fourth part of the sum in litigation. The “Mahratta chout” is a fourth of the reve- nues exacted as tribute by the Mahrattas.

5e apparatus — Not carried into the 5th edition (1979).

## C

### CHRENEORUDA.

Under the Salic law. This was a ceremony performed by a person who was too poor to pay

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bis debt or fine, whereby he applied to a rich relative to pay it for him. It consisted (after certain pre- liminaries) in throwing green herbs upon the party, the effect of which was to bind him to pay the whole demand.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: Chreneoruda is the Salic ceremony of the man too poor to pay, applying to a rich kinsman to pay for him; the verse is the kinsman-redeemer law — the kin redeeming the poor brother's sold possession — the biblical form…

## CHRISTIAN.

Pertaining to Jesus Christ or the religion founded by him ; professing Christianity. The adjective is also used in senses more remote from its original meaning. Thus a "court Christian" is an ecclesiastical court; a "Christian name" is that conferred upon a person at baptism into the Christian church. As a noun, it signifies one who ac- cepts and professes to live by the doctrines and principles of the Christian religion. Hale v. Everett, 53 N. H. 53, 16 Am. Hep. 82 ; State v. Boswell, 40 Neb. 158, 58 N. W. 728, 24 I* R. A 68.

—Christian name. The baptismal name dis- tinct from the surname. Stratton v. Foster, 11 Me. 467. It has been said from the bench that a Christian name may consist of a single letter. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## CHRISTTANITATIS CURIA.

The court Christian. An ecclesiastical court, as op- posed to a civil or lay tribunal. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CHRISTIANITY.

The religion founded and established by Jesus Christ Hale v. Everett 53 N. H. 0, 54, 16 Am. Rep. 82 ; People v. Ruggles, 8 Johns. (N. Y.) 297, 5 Am. Dec. 335.

Concerning the maxim that Christianity is a part of the. common law, or of the law of the land, see State v. Chandler, 2 liar. (Del.) 553 ; Board of Education v. Minor, 23 Ohio St. 211, 13 Am. Rep. 233; Vidal v. Girard, 2 How. 127, 11 L. Ed. 205: Updegraph v. Comm., 11 Serg. & R. (Pa.) 394: Mohney v. Cook, 26 Pa. 342, 67 Am. Dec. 419; Lindeamuller v. People, 33 Barb. (N. Y.) 548 ; Rex v. Woolston, 2 Strange, 834 ; Bloom v. Richards, 2 Ohio St 387 : City Council v. Benjamin, 2 Strob. (S. C.) 598, 49 Am. Dec. 698 ; State v. Bott, 31 La. Ann. 663, 33 Ain. Rep. 224 ; State v. Hallock, 16 Nev. 373.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Acts 11:26, KJV]**

And the disciples were called Christians first in Antioch.

Why: Christianity is the religion founded by Jesus Christ; the verse records where its adherents were first called

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Christians — the naming that defines the entry's subject. Flag off: narrative.

## CHRISTMA 8-DAY.

A festival of the

Christian church, observed on the 25th of December, in memory of the birth of Jesus Christ

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 2:7, KJV]**

And she brought forth her firstborn son, and wrapped him in swaddling clothes, and laid him in a manger; because there was no room for them in the inn.

Why: Christmas-Day is kept in memory of the birth of Jesus Christ; the verse is the nativity itself — the event the feast commemorates. Flag off: narrative.

## CHURCH.

In its most general sense, the religious society founded and established by Jesus Christ to receive, preserve, and propa- gate his doctrines and ordinances.

A body or community of Christians, unit- ed under one form of government by the profession of the same faith, and the observ- ance of the same ritual and ceremonies.

The term may denote either a society of persons who, professing Christianity, hold certain doctrines or observances which differ- entiate them from other like groups, and who use a common discipline, or the build- ing In which such persons habitually as- semble for public worship. Baker v. Fnles, 16 Mass. 498; Tate v. Lawrence, 11 Heisk. (Tenn.) 531; In re Zinzow, 18 Misc. Rep. 653, 43 N. Y. Supp. 714 ; Neale v. St Paul’s Church, 8 GUI (Md.) 116; Gaff v. Greer, 88 Ind. 122, 45 Am. Rep. 449; Josey v. Trust Co., 106 Ga. 608, 32 S. E. 628.

The body of communicants gathered into church order, according to established usage in any town, parish, precinct, or religions society, established according to law, and actually con- nected and associated therewith for religious purposes, for the time being, is to be regarded as the church of snch society, as to all questions of property depending upon that relation. Steb- bins v. Jennings, 10 Pick. (Mass.) 193.

A congregational church is a voluntary associ- ation of Christians united for discipline and worship, connected with, and forming a part of, some religions society, having a legal existence. Anderson v. Brock, 3 Me. 248.

In English ecclesiastical law. An institu- tion established by the law of the land In reference to religion. 3 Steph. Comm. 54. The word “church” is said to mean, in strict- ness, not the material fabric, but tbe cure of souls and the right of tithes. 1 Mod. 201. —Church building acts. Statutes passed in England in and since the year 1818, with the object of extending the accommodation afforded by the national church, so as to make it more commensurate with the wants of the people. 3 Steph. Comm. 152-164.— Church discipline act. The statute 3 & 4 Viet. c. 86, containing regulations for trying clerks in holy orders charged with offenses against ecclesiastical law, and for enforcing sentences pronounced in such cases.

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Phillim. Ecc. Law, 1314.— Church of England. The chnrch of England is a distinct branch of Christ’s chnrch, and is also an insti-

CIRCUIT COURTS OP APPEALS

tution of the state, (see the first clause of Mag- na Charta ,) of which the sovereign is the_ su- preme head by act of parliament, (20 Hen. VIII. e. 1,) but in what sense is not agreed. The sov- ereign must be a member of the church, and every subject is in theory a member. Wharton. Pawlet v. Clark, 9 Cranch, 292, 3 L. Ed. 735. — Church rate. In English law. A sum as- sessed for the repair of parochial churches by the representatives of the parishioners in vestry assembled.— Church reeve. A church warden ; an overseer of a church. Now obsolete. Cowell. -Church-scot. In old English law. Custom- ary obligations paid to the parish priest ; from which duties the religious sometimes purchased an exemption for themselves and their tenants. —Church wardens. A species of ecclesiastic- al officers who are intrusted with the care and guardianship of the church building and proper- ty. These, with the rector and vestry, represent the parish in its corporate capacity.— Church- yard. See Cemetery.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 16:18, KJV]**

And I say also unto thee, That thou art Peter, and upon this rock I will build my church; and the gates of hell shall not prevail against it.

Why: The church is the religious society founded and established by Jesus Christ; the verse is his own founding word on it — 'I will build my church.' Flagged: Jesus' verbatim words.

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, The Hunchback of Notre-Dame, 1831]**

(paraphrase) Quasimodo swings down and claims sanctuary for Esmeralda in Notre-Dame — the church building as a place of legal refuge against the law outside. (paraphrase)

Why: The entry defines church as the religious society and the building of worship. The sanctuary scenes illuminate the church building as a place of legal refuge. Paraphrase only.

## CHURCHESSET.

In old English law. A certain portion or measure of wheat, ancient- ly paid to the church on St. Martin's day; and which, according to Fleta, was paid as well in the time of the Britons as of the English. Fleta, lib. 1, c. 47, 8 28.

5e apparatus — Not carried into the 5th edition (1979).

## CHURL.

In Saxon law. A freeman of inferior rank, chiefly employed In husbandry.

1 Reeve, Eng. Law, 5. A tenant at will of free condition, who held land from a thane, on condition of rents and services. Cowell. See Ceorl.

Cl. Ft. So; here. Ci Diciu vous eyde, so help you God. Ci dev ant, heretofore. Ci bien, as well.

5e apparatus — Not carried into the 5th edition (1979).

## CIBARIA.

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Lat. In the civil law. Food; victuals. Dig. 34, L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CICATRIX.

In medical Jurisprudence. A scar; the mark left In the flesh or skin after the healing of a wound, and having the appearance of a seam or of a ridge of flesh.

5e apparatus — Not carried into the 5th edition (1979).

## CINQUE PORTS.

Five (now seven) ports or havens on the south-east coast of Eng*, land, towards France, formerly esteemed the most important in the kingdom. They are Dover, Sandwich, Romney, Hastings, and Hythe, to which Winclielsea and Rye have been since added. They had similar fran- chises, in some respects, with the counties palatine, and particularly an exclusive, juris- diction. (before the mayor and jurats, corres- ponding to aldermen, of the ports,) in which the king's ordinary writ did not run. 3 BL Comm. 79.

The 18 & 19 Vlct. c. 48, (amended by 20 & 21 Viet. c. 1,) abolishes all jurisdiction and authority of the lord warden of the Cinque Ports and constable of Dover Castle, In or in relation to the administration of justice in actions, suits, or other civil proceedings at law or in equity.

5e apparatus — Not carried into the 5th edition (1979).

## CIPPI.

An old English law term for the stocks, an instrument In which the wrists or ankles of petty offenders were confined.

5e apparatus — Not carried into the 5th edition (1979).

## CIRC AD A.

A tribute anciently paid to the bishop or archbishop for visiting church- es. Du Fresne.

5e apparatus — Not carried into the 5th edition (1979).

## CIRCAR.

In Hindu law. Head of af- fairs ; the state or government ; a grand di- vision of a province; a headman. A name used by Europeans in Bengal to denote the Hindu writer and accountant employed by themselves, or In the public offices. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## CIRCUIT.

A division of the country, appointed for a particular judge to visit for the trial of causes or for the administration of justice. Bouvier.

Circuits, as the term is used in England, may be otherwise defined to be the period- ical progresses of the Judges of the superior courts of common law, through the several counties of England and Wales, for the pur- pose of administering civil and criminal jus- tice.

— Circuit judge. The judge of a circuit court. Crozier v. Lyons, 72 Iowa, 401, 34 N. W. 18(1. —Circuit justice. In federal law and prac- tice. The justice of the supreme court who is allotted to a given circuit. U. S. Comp. St. 1901, p. 4S6.— Circuit paper. In English practice. A paper containing a statement of the time and place at which the several assises will be held, and other statistical information con- nected with the assises. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## CIRCUIT COURTS.

The name of a system of courts of the United States, In- vested with general original jurisdiction of such matters and causes as are of Federal cognizance, except the matters specially del- egated to the district courts.

The United States circuit courts are held by one of the justices of the supreme court ap- pointed for the circuit, (and bearing the name, in that capacity, of circuit justice.) together with the circuit judge and the district judge of the district in which they are held. Their busi- ness is not only the supervision of trials of is- sues in fact, but the hearing of causes as a court in banc; and they have equity as well as common-law jurisdiction, together with appel- late jurisdiction from the decrees and judgments of the district courts. 1 Kent, Comm. -301-303.

In several of the states, circuit court is the name given to a tribunal, the territorial jurisdiction of which comprises several coun- ties or districts, and whose sessions are held in such counties or districts alternately. These courts usually have general original jurisdiction. In re Johnson, 12 Kan. 102.

5e apparatus — Carried into the 5th edition (1979).

## CIRCUIT COURTS OF APPEALS.

A

system of courts of the United States (one in each circuit) created by act of congress of March 3, 1891 (U. S. Comp. St. 1901, p. 488), composed of the circuit justice, the circuit Judge, and an additional circuit Judge ap- pointed for each such court, and having ap- pellate jurisdiction from the circuit and dis- trict courts except In certain specified class- es of cases.

Cireuitiu eat arltiadui et boni judi- cia eat lites dirimere, me Its ex lite oriu- tur. 5 Coke, 31. Circuity is to be avoided; and it is the duty of a good judge to deter- mine litigations, lest one lawsuit arise out of another.

CIRCUIT? OF ACTION. This occurs where a litigant, by a complex, indirect, or roundabout course of legal proceeding, makes two or more actions necessary, in order to effect that adjustment of rights between all the parties concerned in the transaction which, by a more direct course, might have been accomplished in a single suit.

5e apparatus — Carried into the 5th edition (1979).

## CIRCULAR NOTES.

Similar instru- ments to “letters of credit.” They are drawn by resident bankers upon their foreign cor- respondents. in favor of persons traveling abroad. The correspondents must be satis- fied of the identity of the applicant, before payment; and the requisite proof of such Identity is usually furnished, upon the ap- plicant’s producing a letter with his signa- ture, by a comparison of the signatures. Brown.

5e apparatus — Carried into the 5th edition (1979).

## CIRCULATION.

As used in statutes providing for taxes on the circulation of banks, this term includes all currency or cir- culating notes or bills, or certificates or bills intended to circulate as money. U. S. v. White (C. C.) 19 Fed. 723 ; H. S. v. Wilson, 106 U. S. 620, 2 Sup. Ct. 85, 27 L. Ed. 310.

—Circulating medium. This term is more comprehensive than the term “money.” as it is the medium of exchanges, or purchases and sales, whether it be gold or silver coin or any other article.

5e apparatus — Carried into the 5th edition (1979).

## CIRCUMDUCTION.

In Scotch law. A closing of the period for lodging papers, or doing any other act required in a cause. Paters. Comp.

— Circumduction of the term. In Scotch practice. The sentence of a judge, declaring the time elapsed within which a proof ought to have been led. and precluding the party from bringing forward any further evidence. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## CIRCUMSPECTE AOATIS.

The title of a statute passed 13 Edw. I. A. D. 1285, and so called from the initial words of it, the object of which was to ascertain the boundaries of ecclesiastical jurisdiction in some particulars, or, in other words, to reg- ulate the Jurisdiction of the ecclesiastical and temporal courts. 2 Reeve, Eng. Law, 215. 216.

5e apparatus — Not carried into the 5th edition (1979).

## CIRCUMSTANCES.

A principal fact or event being the object of investigation, the circumstances are the related or acces- sory facts or occurrences which attend upon it. which closely precede or follow it, which surround and accompany It, which depend upon it, or which support or qualify it Pfaffenback v. Railroad, 142 Ind. 246, 41 N.

E. 530 ; Clare v. People, 9 Colo. 122, 10 Pac. 799.

The terms “circumstance” and “fact” are, in many applications, synonymous; but the true distinction of a circumstance is its relative character. “Any fact may be a circumstance with reference to any other fact." 1 Benth. Jud. Evid. 42, note; Id. 142.

Thrift, integrity, good repute, business ca- pacity, and stability of character, for example,

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are “circumstances” which may be very proper- ly considered in determining the question of “adequate security.” Martin v. Duke, 5 Redf. Sur. (N. Y.) 600.

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## CIRCUMSTANTIAL EVIDENCE.

Evi- dence directed to the attending circumstan- ces ; evidence which inferentlally proves the principal fact by establishing a condition of surrounding and limiting circumstances, whose existence is a premise from which the existence of the principal fact may be con- cluded by necessary laws' of reasoning. State v. Avery, 113 Mo. 475, 21 S. W. 193 ; Howard v. State, 34 Ark. 433; State v. Evans, 1 Marvel (Del.) 477, 41 Atl. 136; Comm. v. Webster, 5 Cush. (Mass.) 319, 52 Am. Dec. 711; Gardner v. Preston, 2 Day (Conn.) 205. 2 Am. Dec. 91 ; Stnte v. Miller, 9 Houst. (Del.) 564, 32 Atl. 137.

When the existence of any fact is attested by witnesses, as having come under the cognizance of their senses, or is stated in documents, the genuineness and veracity of which there seems no reason to question, the evidence of that fact is said to be direct or positive. When, on the contrary, the existence of the principal fact is only inferred from one or more circumstances

S'hich have been established directly, the evi- ence is said to be circumstantial. And when the existence of the principal fact does not fol- low from the evidentiary facts as a necessary consequence of the law of nature, but is deduced from them by a process of probable reasoning, the evidence and proof are said to be presump- tive. Best, Pres. 246; Id. 12.

All presumptive evidence is circumstantial, be- cause necessarily derived from or made up of circumstances, but all circumstantial evidence is not presumptive, that is, it does not operate in the way of presumption, being sometimes of a higher grade, and leading to necessary con- clusions, instead of probable ones. Burrill.

CIRCUM8TANTIBU8, tales de.

See Tales.

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**[Humanity] — Humanity / Fiction & Film**

**[Wilkie Collins, The Moonstone, 1868]**

(paraphrase) Sergeant Cuff reconstructs the theft of the Moonstone from surrounding circumstances — no witness to the act, only the premises from which it must be inferred. (paraphrase)

Why: The entry defines circumstantial evidence as proof inferring the principal fact from surrounding circumstances. Collins's detective novel is the foundational fictional staging of inferential proof. Paraphrase only.

## CIRCUMVENTION.

In Scotch law. Any act of fraud whereby a person is reduc- ed to a deed by decreet. It has the same sense in the civil law. Dig. 50, 17, 49, 153. And see Oregon v. Jennings, 119 U. S. 74, 7 Sup. Ct. 124, 30 L. Ed. 323.

5e apparatus — Not carried into the 5th edition (1979).

## CIRIC.

In Anglo-Saxon and old English law, a church.

— Ciric-bryce. Any violation of the privileges of a church.— Ciric scent. Church-scot, or shot ; an ecclesiastical due, payable on the day of St. Martin, consisting chiefly of com.

5e apparatus — Not carried into the 5th edition (1979).

## CIRLISCUS.

A ceorl, (?. v.)

5e apparatus — Not carried into the 5th edition (1979).

## CISTA.

A box or, chest for the deposit of charters, deeds, and things of value.

5e apparatus — Not carried into the 5th edition (1979).

## CITACION.

In Spanish law. Citation; summons ; an order of a court requiring a person against whom a suit has been brought to appear and defend within a given time.

5e apparatus — Not carried into the 5th edition (1979).

## CITATIO.

Lat A citation or summons to court.

— Citatio ad reasswm endam cans am. A

summons to take up the cause. A process, in the civil law, which issued when one of the parties to a suit died before its determination, for the plaintiff against the defendant's heir, or for the plaintiff's heir against the defendant, as the case might be; analogous to a modem bill of revivor.

Citatio eat do jarl natural!. A sum- mons Is by natural right. Cases In Banco Regis Wm. III. 453.

5e apparatus — Not carried into the 5th edition (1979).

## CITATION.

In praetioe. A writ is- sued out of a court of competent Jurisdic- tion, commanding a person therein named to appear on a day named and do something therein mentioned, or show cause why he should not Proe. Prac.

The act by which a person is so summon- ed or cited.

It is used In this sense, in American law, in the practice upon writs of error from the United States supreme court, and in the proceedings of courts of probate in many of the states. Leavitt v. Leavitt 135 Mass. 193 ; State v. McCann, 67 Me. 374 ; Schwartz v. Lake, 109 La. 1081, 34 South. 96; Cohen v. Virginia, 6 Wheat 410, 5 L. Ed. 257.

This is also the name of the process used in the English ecclesiastical, probate, and divorce courts to call the defendant or re- spondent before them. 3 Bl. Comm. 100; 3 Steph. Comm. 720.

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In Scotch practice. The calling of a party to an action done by an officer of the court under a proper warrant.

The service of a writ or bill of summons. Paters. Comp.

5e apparatus — Not carried into the 5th edition (1979).

## CITATION OF AUTHORITIES.

The

reading of, or reference to, legal authorities and precedents, (such as constitutions, stat- utes, reported cases, and elementary trea- tises,) in arguments to courts, or in legal text-books, to establish or fortify the propo- sitions advanced.

Law of citations. See Law.

Citationea non ooncedantnr priusqnam exprimatur super qua re Seri debet oi- tatio. Citations should not be granted be- fore it is stated about what matter the cita- tion is to be made. A maxim of ecclesiasti- cal law. 12 Coke, 44.

5e apparatus — Carried into the 5th edition (1979).

## CITE.

L. Pr. City; a city. Cite de Loundr ’, city of London.

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**[Scripture] — Scripture**

**[Romans 14:10, KJV]**

for we shall all stand before the judgment seat of Christ.

Why: In its summons sense: 'to command the presence of a person... require his appearance thereto.' The verse is the archetype of the summons — every person commanded to appear before a judgment seat. It illuminates the ju...

## CITE.

To sumaion ; to command the presence of a person; to notify a person of

legal proceedings against him and require his appearance thereto.

To read or refer to legal authorities, in an argument to a court or elsewhere, in support of propositions of law sought to be estab- lished.

5e apparatus — Carried into the 5th edition (1979).

## CITIZEN.

In general. 4 member of a free city or jural society, ( civitas ,) possess- ing all the righte and privileges which can be enjoyed by any person under its consti- tution and government, and subject to the corresponding duties.

In American law. One who, under the constitution and laws of the United States, or of a particular state, and by virtue of birth or naturalization within the jurisdic- tion, is a member of the political community, owing allegiance and being entitled to the enjoyment of full civil rights. U. S. v. Cruikshauk, 92 U. S. 542, 23 L. Ed. 588; White v. Clements, 39 Ga. 259; Amy v. Smith, 1 Lltt. (Ky.) 331 ; State v. County Court, 90 Mo. 593, 2 S. W. 788; Minor v.

Happersett. 21 Wall. 162, 22 L. Ed. 627 ; U.

S. v. Morris (D. C.) 125 Fed. 325.

The term "citizen” has come to us derived from antiquity. It appears to have been used in the Roman government to designate a per- son who had the freedom of the city, and the right to exercise all political and civil privi- leges of the government. There was also, at Rome, a partial citizenship, including civil, but not political, rights. Complete citizenship em- braced both. Thomasson v. State, 15 Ind. 451.

All persons born or naturalized in the United States, and subject to the Jurisdic- tion thereof, are citizens of the United States and of the state wherein they reside. Amend. XIV, Const. U. S.

There is in our political system a government of each of the several states, and a government of the United States. Bach is distinct from the others, and has citizens of its own, who owe it allegiance, and whose rights, within its juris- diction, it must protect. The same person may be at the same time a citizen of the United States and a citizen of a state; but his rights of citizenship under one of these governments will be different from those he has under the other. The government of the United States, although it is, within the scope of its powers, supreme and beyond the states, can neither grant nor secure to its citizens rights or privi- leges which are not expressly or by implication placed under its jurisdiction. All that cannot be so granted or secured are left to the exclu- sive protection of the states. U. S. v. Cruik- shank, 92 U. S. 642, 23 L. Ed. 588.

“Citizen” and “inhabitant” are not synony- mous. One may be a citizen of a state without being an inhabitant, or an inhabitant without being a citizen. Quinby v. Duncan, 4 Har. (Del.) 383.

“Citizen” is sometimes used as synonymous with “resident;” as in a statute authorizing funds to be distributed among the religious so- cieties of a township, proportionably to the num- ber of their members who are citizens of the township. State v. Trustees, 11 Ohio, 24.

In English law. An inhabitant of a city. 1 Rolle, 138. The representative of a city, in parliament. 1 Bl. Comm. 174. It will be perceived that, in the English usage, the

word adheres closely to Its original meaning, as shown by its derivation, ( civis , a free in- habitant of a city.) When it is designed to designate an inhabitant of the country, or one amenable to the laws of the nation, “subject” is the word there employed.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIV, § 1 — citizenship clause]**

The American-law definition of citizen by birth or naturalization rests on the Fourteenth Amendment's citizenship clause, which the entry itself begins to quote.

Why: The entry defines an American citizen as one who is such 'by virtue of birth or naturalization within the jurisdiction' — the direct paraphrase of the clause 'All persons born or naturalized in the United States, and…

**[Scripture] — Scripture**

**[Ephesians 2:19, KJV]**

Now therefore ye are no more strangers and foreigners, but fellowcitizens with the saints, and of the household of God.

Why: The entry defines a citizen as a member of a jural society 'under its constitution and government.' Paul's 'fellowcitizens with the saints' is citizenship language proper — membership in a body politic under a common...

## CITIZENSHIP.

The status of being a citizen, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## CITY.

In England. An incorporated town or borough which is or has been the see of a bishop. Co. Litt. 108; 1 Bl. Comm. 114; Cowell. State v. Green, 126 N. a 1032, 35 S. B. 462.

A large town incorporated with certain privileges. The inhabitants of a city. The citizens. Worcester.

In America. A city is a municipal cor- poration of a larger class, the distinctive fea- ture of whose organization is its government by a chief executive (usually called "mayor”) and a legislative body, composed of repre- sentatives of the citizens, (usually called a "council” or “board of aldermen,”) and oth- er officers having special functions. Wight Co. v. Wolff, 112 Ga. 160, 37 S. E. 305.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Hunter v. Pittsburgh, 207 U.S. 161 (1907)]**

The entry defines an American city as a municipal corporation; the operative structural principle is that such corporations are creatures of the state, subject to its plenary control.

Why: Hunter holds municipal corporations to be political subdivisions of the state with no Contract-Clause protection against state restructuring — the doctrine (Dillon's Rule lineage) that gives the entry's 'municipal cor...

**[Scripture] — Scripture**

**[Psalm 127:1, KJV]**

Except the LORD keep the city, the watchman waketh but in vain.

Why: The entry's city is an organized body politic under government. The Psalm places that guarded polity inside a higher jurisdiction: watchmen, walls, and municipal order are vain without the LORD's keeping. It illuminat...

## CITY OF LONDON COURT.

A court having a local Jurisdiction within the city of London. It is to all Intents and purposes a county court, having the same Jurisdiction and procedure.

5e apparatus — Not carried into the 5th edition (1979).

# O

## OIUDADES.

Sp. In Spanish law, cities ; distinguished from towns (pueblos) and vil- lages (villas.) Hart v. Burnett, 15 Cal.. 537.

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5e apparatus — Not carried into the 5th edition (1979).

# C

## CIVIL.

In its original sense, this word means pertaining or appropriate to a mem- ber of a civitas or free political community ; natural or proper to a citizen. Also, relat- ing to the community, or to the policy and government of the citizens and subjects of a state.

In the language of the law, it has various significations. In contradistinction to bar- barous or savage, it indicates a state of so- ciety reduced to order and regular govern- ment; thus, we speak of civil life, civil so- ciety, civil government, and civil liberty. In contradistinction to criminal, it indicates the private rights and remedies of men, as members of the community, in contrast to those which are public and relate to the gov- ernment; thus, we speak of civil process and criminal process, civil Jurisdiction and criminal Jurisdiction.

It is also used In contradistinction to mili- tary or ecclesiastical, to natural or foreign; thus, we speak of a civil station, as opposed to a military or an ecclesiastical station ; a civil death, as opposed to a natural death ; a civil war, as opposed to a foreign war. Sto- ry, Const I 791.

—Civil responsibility. The liability to be railed upon to respond to an action at law for an injury caused by a delict or crime, as opposed to criminal responsibility, or liability to be proceeded against in a criminal tribunal.— Civil side. When the same court has jurisdiction of both civil and criminal matters, proceedings of the first class are often said to be on the civil side ; those of the second, on the criminal side.

As to civil "Commotion,” “Corporations,” “Death,” "Injury,” “liberty,” “Obligation," “Officer," “Remedy," “Rights,” and “War," see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## CIVIL ACTION.

la the civil law. A

personal action which is instituted to com- pel paymept, or the doing some other thing which is purely civil.

At common law. As distinguished from a criminal action, it is one’ which seeks the establishment, recovery, or redress of pri- vate and civil rights.

Civil suits relate to and affect, as to the par- ties against whom they are brought, only individual rights which are within their individ- ual control, and which they may part with at their pleasure. The design of Buch suits is the enforcement of merely private obligations and duties. Criminal prosecutions, on the other hand, involve public wrongs, or a breach and violation of public rights and duties, which af- fect the whole community, considered as such in Its social and aggregate capacity. The end they have in view is the prevention of similar offenses, not atonement or expiation for crime committed. Cancemi v. People, 18 N.

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Y. 128.

Civil cases are those which involve disputes or contests between man and man, and which only terminate in the adjustment of the rights of plaintiffs and defendants. They include all cas- es which cannot legally be denominated "crim- inal cases.” Fenstermacher v. State, 19 Or. 604, 25 Pac. 142.

In. oode practise. A civil action is a pro- ceeding in a court of justice in which one party, known as the “plaintiff,” demands against another party, known as the “defend- ant,” the enforcement or protection of a pri- vate right, or the prevention or redress of a private wrong. It may also be brought for the recovery of a penalty or forfeiture. Rev. Code Iowa 1880, ) 2505.

The distinction between actions at law and suits in equity, and the forms of all such actions and suits, heretofore existing, is abol- ished; and there shall be in this state, here- after, but one form of action for the enforce- ment or protection of private rights and the redress of private wrongs, which shall be de- nominated a “civil action.” Code N. Y. f 69.

5e apparatus — Not carried into the 5th edition (1979).

## CIVIL BILL COURT.

A tribunal in Ire- land with a jurisdiction analogous to that of the county courts In England. The Judge of it is also chairman of quarter sessions, (where the jurisdiction is more extensive than in England,) and performs the duty of revising barrister. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CIVIL DAMAGE ACTS.

Acts passed in many of the United States which provide an action for damages against a vendor of in- toxicating liquors, (and, in some cases, against his lessor,) on behalf of the wife or family of a person who has sustained Injuries by reason of hte Intoxication. Moran v. Goodwin, 130 Mass. 158, 39 Am. Bep. 443; Baker v. Pope, 2 Hun (N. X.) 556; Headington v. Smith, 113 Iowa, 107, 84 N. W. 983.

5e apparatus — Carried into the 5th edition (1979).

## CIVIL LAW.

The “Roman Law” and the “Civil Law” are convertible phrases, meaning the same system of jurisprudence ; it is now frequently denominated the “Roman Civil Law.”

The word “civil,” as applied to the laws in force in Louisiana, before the adoption of the Civil Code, is not used in contradistinction to the word "criminal,” but must be restricted to the Roman law. It is used in contradistinction to the laws of England and those of the respec- tive states. Jennison v. Warmack, 5 La. 493.

1. The system of Jurisprudence held and administered in the Roman empire, partic- ularly as set forth in the compilation of Just- inian and his successors, -^-comprising the In- stitutes, Code, Digest, and Novels, and col- lectively denominated the “Corpus Juris Civ- ilis,” — as distinguished from the common law of England and the canon law.

2. That rule of action which every par- ticular nation, commonwealth, or city has es- tablished peculiarly for Itself ; more properly called “municipal” law, to distinguish it from the “law of nature," and from interna- tional law.

The law which a people enacts is called the "civil law” of that people, but that law which natural reason appoints for all mankind is called the ‘law of nations,” because all na- tions use it Bowyer, Mod. Civil Law, 19.

3. That division of municipal law which is occupied with the exposition and enforce- ment of civil rights, as distinguished from criminal law,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## CIVIL LIST.

In English public law. An annual sum granted by parliament, at the commencement of each reign, for the expense of the royal household and establishment, as distinguished from the general exigencies of the state, being a provision made for the crown out of the taxes in lieu of its proper patrimony, and in consideration of the as- signment of that patrimony to the public use. 2 Steph. Comm. 591 ; 1 Bl. Comm. 332.

5e apparatus — Not carried into the 5th edition (1979).

## CIVIL SERVICE.

This term properly includes all functions under the government, except military functions. In general it is confined to functions in the great adminis- trative departments of state. See Hope v. New Orleans, 106 La. 345, 30 South. 842; People v. Cram, 29 MIsc. Rep. 359, 61 N. X. Supp. 858.

5e apparatus — Carried into the 5th edition (1979).

## CIVILIAN.

One who Is skilled or versed in the civil law. A doctor, professor, or stu- dent of the civil law. Also a private citizen, as distinguished from such as belong to the army and navy or (in England) the church.

5e apparatus — Carried into the 5th edition (1979).

## CIV ILIS.

Lat. Civil, as distinguished from criminal. Civilis actio, a civil action. Bract fol. 1016.

5e apparatus — Not carried into the 5th edition (1979).

## CIV1LISTA.

In old English law. A civil lawyer, or civilian. Dyer, 207.

5e apparatus — Not carried into the 5th edition (1979).

## C1V1LITER.

Civilly. In a person’s civil character or position, or by civil (not crimi- nal) process or procedure. This term Is used in distinction or opposition to the word "criminaliter,” —

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criminally, — to distinguish

civil actions from criminal prosecutions.

— Civil! ter xnortuua. Civilly dead; dead in the view of the law. The condition of one who has lost his civil rights and capacities, and is accounted dead in law.

5e apparatus — Not carried into the 5th edition (1979).

## CIVILIZATION.

la practice. A law; an act of Justice, or Judgment which renders a criminal process civil ; performed by turn- ing an information Into an inquest, or the contrary. Wharton.

In public law. This is a term which cov- ers several states of society ; it is relative, and has not a fixed sense, but it implies an improved and progressive condition of the people, living under an organized govern- ment, with systematized labor, individual ownership of the soil, Individual accumula- tions of property, humane and somewhat cultivated manners and customs, the Institu- tion of the family, with well-defined and re- spected domestic and social relations, insti- tutions of learning, intellectual activity, eta Roche v. Washington, 19 Ind. 56, 81 Am. Dec. 876.

CrviS. Lat In the Roman law. A citi- zen; as distinguished from incola, (an in- habitant;) origin or birth constituting the former, domicile the latter. Code, 10, 40, 7. And see D. S. v. Rhodes, 27 Fed. Cas. 788.

5e apparatus — Not carried into the 5th edition (1979).

## CIV1TAS.

Lat. In the Roman law. Any body of people living under the same laws; a state. Jus civitatis, the law of a state; civil law. Inst 1, 2, 1. 2. Civitates f<sderat(e, towns in alliance with Rome, and considered to be free. Butl. Hor. Jur. 29.

Citizenship; one of the three status, con- ditions, or qualifications of persons. Mac- keld. Rom. Law, ! 131.

Civitaa et urbo in Roe different, quod incolse di cuntur eivitas, urba mo com- plectitur as dill da. Co. Litt 409. A city and a town differ, in this: that the inhabit- ants are called the “city,” but town includes the buildings.

CLAIM, v. To demand as one’s own ; to assert a personal right to any property or any right; to demand the possession or en- joyment of something rightfully one's own, and wrongfully withheld. Hill v. Henry, 66

N. J. Eq. 150, 57 Atl. 555.

CLAIM, a. 1. A. challenge of the proper- ty or ownership of a thing which Is wrongful- ly withheld from the possession of the claim- ant. S towel v. Zouch, Plowd. 359 ; Robinson v. Wiley, 15 N. Y. 491 ; Fordyce v. Godman, 20 Ohio St 14; Douglas v. Beasley, 40 Ala. 147 ; Prigg v. Pennsylvania, 16 Pet. 615, 10

L. Ed. 1060; D. S. v. Rhodes (C. C.) 30 Fed. 433; Silliman v. Eddy, 8 How. Prac. (N. Y.) 123.

A claim is a right or title, actual or supposed, to a debt, privilege, or other thing in the pos-

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session of another; not the possession, but the means by or through which the claimant obtains the possession or enjoyment. Lawrence v. Miller, 2 N. Y. 245, 254.

A claim is, in a just, juridical sense, a demand of some matter as of right made by one person upon another, to do or to forbear to do some act or thing as a matter of duty. A more lim- ited, but at the same time an equally expressive, definition was given by Lord Dyer, that “a claim is a challenge by a man of the propriety or ownership of a thing, which he has not in possession, but which is wrongfully detained from him.” Prigg v. Pennsylvania, 16 Pet. 615, 10 L. Ed. 1060.

"Claim” has generally been defined as a de- mand for a thing, the ownership of which, or an interest in which, is in the claimant, but the possession of which is wrongfully withheld by another. But a broader meaning must be ac- corded to it. A demand for damages for criminal conversation with plaintiff’s wife is a claim; but it would be doing violence to lan- guage to say that such damages are property of plaintiff which defendant withholds. In com- mon parlance the noun “claim” means an asser- tion, a pretension ; and the verb is often used (not quite correctly) as a synonym for “state," “urge?’ “insist,” or “assert. In a statute authorizing the courts to order a bill of partic- ulars of the “claim” of either party, “claim” is co-extensive with “case," and embraces all caus- es of action and all grounds of defense, the pleas of both parties, and pleas in confession and avoidance, no less than complaints and counter-claims. It warrants the court in re- quiring a defendant who justifies in a libel suit to furnish particulars of the facts relied upon In justification. Orvis v. Jennings, 6 Daly (N. Y.) 446.

2. Under the mechanic’s lien law of Penn- sylvania, a demand put on record by a me- chanic or material-man against a building for work or material contributed to its erec- tion is called a “claim.”

3. Under the land laws of the United States, the tract of land taken up by a pre- emptioner or other settler (and also his pos- session of the same) is called a “claim.”' Rail- road Co. v. Ablnk, 14 Neb. 95, 15 N. W. 317 ; Bowman v. Torr, 3 Iowa, 573.

4. In patent law, the claim is the speci- fication by the applicant for a patent of the particular things in which he insists his in- vention is novel and patentable; it is the clause in the application in which the appli- cant defines precisely what his invention is. White v. Dunbar, 119 U. S. 47, 7 Sup. CL 72, 30 L. Ed. 303; Brammer v. Schroeder, 106 Fed. 930, 46 C. O. A 41.

—Adverse claim. A claim set up by a stran- ger to goods upon which the sheriff has levied an execution or attachment.— Claim and delivery. An action at law for the recovery of specific personal chattels wrongfully taken and detained, with damages which die wrongful tak- ing or detention has caused ; in substance a modern modification of the common-law action of replevin. Fredericks v. Tracy, 98 Cal. 658, 33 Pac. 750; Railroad Co. v. Gila County, 8 Ariz. 292, 71 Pac. 913.

—Claim is equity. In English practice. In simple cases, where there was not any great conflict as to facts, and a discovery from a de- fendant was not sought, but a reference to

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chambers was nevertheless necessary before final decree, which would be as of course, all parties being before the court, the summaiy proceed- ing by claim was sometimes adopted, thus ob- viating the recourse to plenary and protracted pleadings. This summary practice was created by orders 22d April, 1850. which came into operation on the 22d May following. See Smith, Ch. Pr. 664. By Consolid. Ord. 1860, viii, r. 4, claims were abolished. Wharton.— Claim of oonuauace. In practice. An intervention by a third person in a suit, claiming that he has rightful jurisdiction of the cause which the plaintiff has commenced out of the claimant’s court Now obsolete. 2 Wils. 406 ; 3 Bl. Comm. 298.— Claim of liberty. In English practice. A suit or petition to the queen, in the court of exchequer, to have liberties and franchises confirmed there by the attorney gen- eral.— Counter-claim. A claim set up and urged by the defendant in opposition to or re- duction of the claim presented by the plaintiff. See, more fully, Coonteb-claim.

5e apparatus — Not carried into the 5th edition (1979).

## CLAIMANT.

In admiralty practice. The name given to a person. who lays claim to property seized on a libel in rem, and who is authorized and admitted to defend the action. The Conqueror, 166 U. S. 110, 17 Sup. CL 510, 41 U Ed. 937.

5e apparatus — Carried into the 5th edition (1979).

## CLAM.

LaL In the civil law. Covertly ; secretly.

—Clam, vi, aut p re carlo. A technical

phrase of the Roman law, meaning by force, stealth, or importunity.

Clam deliaquentes magia p union tur quam palam. 8 Coke, 127. Those sinning secretly are punished more severely than those sinning openly.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: adverse possession requires possession that is open and notorious — the inverse of the Roman clam/vi/precario formula]**

The Roman formula 'clam, vi, aut precario' (by stealth, force, or importunity) is the classical statement of defective possession; its American heir is the adverse-possession requirement that possession be open and notorious — possession taken clam defeats the claim.

Why: The entry quotes the formula and Coke's maxim on secret wrongdoing; the annotation explains the formula's operative descendant in American property law rather than restating the gloss. Stated as an axiom because no si…

**[Scripture] — Scripture**

**[Luke 8:17, KJV]**

For nothing is secret, that shall not be made manifest; neither any thing hid, that shall not be known and come abroad.

Why: Black's quotes the maxim 'Those sinning secretly are punished more severely than those sinning openly.' The verse bears directly on it: secrecy is only apparent — the hidden will be made manifest, i.e., tried in the o…

## CLAMEA AD MITT END A IN ITINERE / FEB ATTORNATUM.

An ancient writ by which the king commanded the justices in eyre to admit the claim by attorney of a person who was in the royal service, and could not appear in person^ Reg. Orig. 19.

5e apparatus — Not carried into the 5th edition (1979).

## CLAMOR.

Zb old English law. A

claim or complaint; an outcry; clamor.

Is the civil law. A clatmanL A debt; anything claimed from another. A procla- mation; an accusation. Du Cange.

5e apparatus — Carried into the 5th edition (1979).

## CLANDESTINE.

Secret; hidden; con- cealed. Tie “clandestine importation” of goods is a term used in English statutes as equivalent to “smuggling.” Keck v. U. S., 172 U. S. 434, 19 Sup. CL 254, 43 L. Ed. 505. A Clandestine marriage is (legally) one contracted without observing the conditions precedent prescribed by law, such as publica- tion of bans, procuring a license, or the like.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 5:11-12, KJV]**

And have no fellowship with the unfruitful works of darkness, but rather reprove them. For it is a shame even to speak of those things which are done of them in secret.

Why: Clandestine importation and clandestine marriage are works done 'in secret' to evade the law's conditions. The verse names exactly that class of acts — evasion by concealment — and condemns it. Genuine bearing on the...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Romeo and Juliet, c. 1595]**

(paraphrase) Friar Laurence secretly marries Romeo and Juliet so the feuding houses will not know — clandestineness as the play's engine. (paraphrase)

Why: Entry defines clandestine as secret/hidden/concealed. The Friar's secret wedding is the canonical literary instance of a clandestine act; paraphrase marked because exact wording not cited verbatim.

# G

## GLARE  CONSTAT.

(It clearly appears.) In Scotch law. The name of a precept for giving seisin of lands to an heir; so called from its Initial words. Ersk. Inst. 3, 8, 71.

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# C

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## CLAREMETHEN.

In old Scotch law. The warranty of stolen cattle or goods; the law regulating such warranty. Skene.

CLARENDON, CONSTITUTIONS OS*.

The constitutions of Clarendon were certain statutes made in the reign of Henry II. of England, at a parliament held at Clarendon, (A. D. 1164,) by which the king checked the power of the pope and his clergy, and great- ly narrowed the exemption they claimed from secular jurisdiction. 4 Bl. Comm. 422.

5e apparatus — Not carried into the 5th edition (1979).

## CLARIFICATIO.

Lat In old Scotch law. A making clear; the purging or clear- ing (clenglng) of an assise. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## CLASS.

The order or rank according to which persons or things are arranged or as- sorted. Also a group of persons or things, taken collectively, having certain qualities in common, and constituting a unit for cer- tain purposes; e. g., a class of legatees. In re Harpke, 116 Fed. 297, 54 C. C. A. 97; Swarts v. Bank, 117 Fed. 1, 54 C. C. A. 387; Farnam v. Farnam, 53 Conn. 261, 2 Atl. 325, 5 Atl. 682; Dulany v. Middleton, 72 Md. 67, 19 Atl. 146; In re Russell, 168 N. Y. 169, 61 N. E. 166.

— Class legislation. A term applied to statu- tory enactments which divide the people or sub- jects of legislation into classes, with reference either to the grant of privileges or the imposi- tion of burdens, upon an arbitrary, unjust, or invidious principle of division, or which, though the principle of division may be sound and jus- tifiable, make arbitrary discriminations between those persons or things coming within the same class. State v. Garbroski, 111 Iowa, 496, 82

N. W. 959, 56 L. R. A. 570, 82 Am. St. Rep. 524 ; In re Hang Kle, 69 Cal. 149, 10 Pac. 327 ; Hawkins v. Roberts, 122 Ala. 130, 27 South. 327 ; State v. Cooley, 56 Minn. 540, 58 N. W. 150; Wagner v. Milwaukee County, 112 Wis. 601, 88 N. W. 577 ; State v. Brewing Co., 104 Tenn. 715, 59 S. W. 1033, 78 Am. St. Rep. 941.

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**[Law] — Law**

**[Yick Wo v. Hopkins, 118 U.S. 356 (1886)]**

The entry's 'class legislation' — statutes dividing people into classes on an arbitrary or invidious principle — is the fact pattern of the landmark equal-protection case striking down discriminatory laundry ordinances, the federal cousin of the entry's own cited In re Hang Kie.

Why: The entry's cited cases include the California laundry-ordinance prosecution (In re Hang Kie, 69 Cal. 149); Yick Wo is the U.S. Supreme Court's decision on the same ordinances, holding invidious classification violati...

## CLASSIARXUS.

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A seaman or soldier serving at sea.

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## CLASSICI.

In the Roman law. Per- sons employed In servile duties on board of vessels. Cod. 11, 12.

5e apparatus — Not carried into the 5th edition (1979).

## CLASSIFICATION.

In the practice of the English chancery division, where there are several parties to an administration ac- tion, including those who have been served with notice of the decree or judgment, and it appears to the judge (or chief clerk) that any of them form a class having the same interest, (e. g., residuary legatees,) he may require them to be represented by one so- licitor, in order to prevent the expense of each of them attending by separate solicitors. This is termed “classifying the interests of

the parties attending," or, shortly, “classi- fying,” or “classification.” In practice the term Is also applied to the directions given by the chief clerk as to which of the parties are to attend on each of the accounts and Inquiries directed by the judgment Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CLAUSE.

A single paragraph or subdi- vision of a legal document such as a con- tract, deed, will, constitution, or statute. Sometimes a sentence or part of a sentence. Appeal of Miles, 68 Conn. 237, 36 Atl. 39, 36 L. R_ A. 176 ; Eschbach v. Collins, 61 Md. 499, 48 Am. Rep. 123.

—Clause Irritant. In Scotch law. By this clause, in a deed or settlement, the acts or deeds of a tenant for life or other proprietor, contrary to the conditions of his right, become null and void ; and by the “resolutive” clause such right becomes resolved and extinguished. Bell.— Clause potestative. In French law. The name given to the clause whereby one party to a contract reserves to himself the right to an- nul it.— Clause rolls. In English law. Rolls which contain all such matters of record as were committed to close writs ; these rolls are preserved in the Tower.

5e apparatus — Not carried into the 5th edition (1979).

## CLAUSULA.

A clause; a sentence or part of a sentence in a written instrument or law.

Clausula generalis do reaiduo non on oompleotitur qua non ejusdem slut gen- eris cum iis qua speciatim dicta fue- rant. A general clause of remainder does not embrace those things which are not of the same kind with those which bad been specially mentioned. Lofft, Appendix, 410.

Clausula generalis non refertur ad express*. 8 Coke, 154. A general clause does not refer to tilings expressed.

Clausula qua abrogationem ezoludit ab initio non valet. A clause [in a law] which precludes

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its abrogation is void from the beginning. Bac. Max. 77.

i

Clausula vel diapositio lnutiils per prastunp tionem remotam, vel caus&m ex post facto non fuloitur. A useless clause or disixmition [one which expresses no more than the law by Intendment would have sup- plied] Is not supported by a remote presump- tion, [or foreign Intendment of some purpose. In regard whereof it might be material,] or by a cause arising afterwards, [which may induce an operation of those Idle words.] Bac. Max. 82, regula 21.

Clausula inconsueta semper indueunt ■uapicionem. Unusual clauses [in an in- strument] always Induce suspicion. 3 Coke. 81.

5e apparatus — Not carried into the 5th edition (1979).

## CLAUSUM.

Lat. Close, closed up, seal- ed. Inclosed, as a parcel of land.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CLAUSUM FREGIT.

L. Lat (He broke the close.) In pleading and practice. Tech- nical words formerly used In certain actions

of trespass, and still retained in the phrase quart clausum Jrtgit, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## CLAUSUM PASCHL2E.

In English law. The morrow of the utas, or eight days of Easter; the end of Easter; the Sunday after Easter-day. 2 Inst 157.

5e apparatus — Not carried into the 5th edition (1979).

## CLAUSURA.

In old English law. An Inclosure. Clausura heyw, the inclosure of a hedge. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CLAVES CURLS.

The keys of the court They were the officers of the Scotch courts, such as clerk, doomster, and serjeant Bnrrill.

5e apparatus — Not carried into the 5th edition (1979).

## CLAVES INSULAE.

In Manx law. The keys of the Island of Man, or twelve persona to whom all ambiguous and weighty causes are referred.

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## CLAVIA.

In old English law. A club or mace; tenure per serjeantiam device, by the serjeanty of the

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club or mace. Cowell.

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## CLAVIGERATUS.

A treasurer of a cburefc.

5e apparatus — Not carried into the 5th edition (1979).

## CLAWA.

A dose, or small Inclosure. CowelL

5e apparatus — Carried into the 5th edition (1979).

## CLEAR.

Irreproachable; Innocent of fraud or wrongdoing; free from defect In form or Bubstance; free from exceptions or reservations. See examples below.

— Clean bill of health. One certifying that no contagious or infectious disease exists, or certifying as to healthy conditions generally without exception or reservation.— Cleon bill of lading. One without exception or reser- vation as to the place or manner of stowage of the goods, and Importing that the goods are to be (or have been) safely and property stowed under deck. The Delaware, 14 Wall. 596, 20 U Ed. 779; The Kirkhill, 99 Fed. 575. 39 a

C. A. 658; The Wellington, 29 Fed. Cas. 626. —Cleon bonds. It is a rule of equity that a plaintiff must come with “clean hands.” «. e., he must be free from reproach in his conduct. But there is this limitation to the rule: that his con- duct can only be excepted to in respect to the subject-matter of his claim ; everything else is immaterial. American Ass’n v. Innis, 109 Ky. 595, 60 S. W. 388.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 24:16, KJV]**

And herein do I exercise myself, to have always a conscience void of offence toward God, and toward men.

Why: The entry: 'Irreproachable; Innocent of fraud or wrongdoing.' Paul speaks before a Roman tribunal (Felix); a conscience 'void of offence' is the standing of the cleared — the person against whom no charge will lie. Th…

## CLEAR.

Plain; evident; free from doubt or conjecture; also, unincumbered;' free from deductions or draw-backs.

— Clear annual value. The net yearly value to the possessor of the property, over and above taxes, interest on mortgages, and other char- ges and deductions. Groton v. Boxborough. 6 Mass. 56; Marsh v. Hammond, 103 Mass. 149; Shelton v. Campbell. 109 Tenn. 690, 72 S. W. 112.— Clear annuity. The devise of an an- nuity “clear” means an annuity free from tax- es (Hodgworth v. Crawley, 2 Atk. 376) or free or clear of legacy or inheritance taxes. In re Bispham’s Estate, 24 Wkly. Notes Cas. (Pa.) 79.— Clear days. If a certain number of clear days be given for the doing of any act. the time is to be reckoned

exclusively, as well of the first day as the last. Hex v. Justices, 3 Barn. & Aid. 581 ; Hodgins v. Hancock. 14 Meea A W. 120; State v. Marvin, 12 Iowa,

502.— Clear evidence or proof. Evidence

which is positive, precise and explicit, as op- posed to ambiguous, equivocal, or contradictory proof, and which tends directly to establish the point to which it is adduced, instead of leav- ing it a matter of conjecture or presumption, aud is sufficient to make out a prima facie case. Mortgage Co. v. Pace, 23 Tex. Civ. App. 222, 56 S. W. 377; Reynolds v. Blaisdell, 23 R. I. 16, 49 Atl. 42; Ward v. Waterman. 85 Cal. 488, 24 Pac. 930; Jermyn v. McClure, 195 Pa. 245, 45 Atl. 938; Winston v. Burnell. 44 Kan. 367, 24 Pac. 477, 21 Am. St. Rep. 289 ; Spen- cer v. Colt. 89 Pa. 318; People v. W reden, 59 Cal. 395.— Clear title. One which is not sub- ject to any incumbrance. Roberts v. Bassett, 105 Mass. 409.

5e apparatus — Carried into the 5th edition (1979).

## CLEARANCE.

In maritime law. A document in the nature of a certificate given by the collector of customs to an outward- bound vessel, to the effect that she has com- plied with the law, and is duly authorized to depart

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CLEARING.

The departure of a vessel from port, after complying with the customs and health laws and like local regulations.

In mercantile law. A method of making exchanges and settling balances, adopted among banks and bankers.

5e apparatus — Carried into the 5th edition (1979).

## CLEARING-HOUSE.

An institution or- ganized by the banks of a city, where tbeir messengers may meet daily, adjust balances of accounts, and receive and pay differences. Crane v. Bank, 173 Pa. 566, 34 Atl. 296 ; Na- tional Exch. Bank v. National Bank of North America, 132 Mass. 147; Philler v. Patter- son, 168 Pa. 468, 32 Atl. 26, 47 Am. St Rep. 896.

5e apparatus — Carried into the 5th edition (1979).

## CLEMENTINES.

Iu caDon law. The collection of decretals or constitutions of Pope Clement V., made by order of John XXII., his successor, who published it in 1317.

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## CLEMENT'S INN.

An inn of chancery. See Inns or Chancebt.

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## CLENGE.

In old Scotch law. To dear or acquit of a criminal charge. Literally, to cleanse or clean.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 34:7, KJV]**

and that will by no means clear the guilty.

Why: Old Scots: 'to acquit of a criminal charge.' The entry names the acquitting power; the verse states its divine limit — the LORD will by no means clear the guilty. It illuminates acquittal from the other side: the powe...

## CLEF AND CALL.

In old Scotch prac- tice. A solemn form of words prescribed by law, and used in criminal cases, as in pleas of wrong and unlaw.

5e apparatus — Not carried into the 5th edition (1979).

## CLERGY.

The whole body of clergymen or ministers of religion. Also an abbrevia- tion for “benefit of dergy." See Benefit.

— Regular clergy. In old English law. Monks who lived secundum regulas (according to the rule*) of their respective houses or societies were so denominated, in contradistinction to the parochial clergy, who performed their min- istry in the world, in scculo, and who from thence were called "secular" clergy. 1 Chit. Bl. 387, note.

5e apparatus — Carried into the 5th edition (1979).

## CLERGYABLE.

In old English law. Admitting of dergy, or benefit of dergy. A

clergyable felony was one of tbat class In which clergy was allowable. 4 Bl. Comm. 571-373.

5e apparatus — Carried into the 5th edition (1979).

## CLERICAL.

Pertaining to clergymen ; or pertaining to the office or labor of a clerk.

— Clerical error. A mistake in writing or copying: the mistake of a cleric or writer.

1 Ld. Raym. 183. — Clerical tonsure. The having the head shaven, which was formerly peculiar to clerks, or persons in orders, and which the coifs worn by serjeants at law are supposed to have been introduced to conceal 1 Bl. Comm. 24, note t; 4 Bl. Comm. 367.

5e apparatus — Carried into the 5th edition (1979).

## CLERICALS PRIVILEGIUM.

In old

English law. The clerical privilege; the privilege or benefit of clergy.

, CLERICI DE CAM CELLAR! A. Clerks of the chancery.

Cleric! non ponantur In officiia. Co.

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Litt 96. Clergymen should not be placed in offices; 4 e., in secular offices. See Lofft, 508.

5e apparatus — Not carried into the 5th edition (1979).

## CLERICI PXUENOTARH.

The six

clerks in chancery. 2 Reeve, Eng. Law, 251.

5e apparatus — Not carried into the 5th edition (1979).

## CLERIOO ADMITTEMDO.

See AD-

MITTEN DO Clkbioo.

5e apparatus — Not carried into the 5th edition (1979).

## CLERICO CAPTO PER 8TATBTTJM / MERCATORUK.

A writ for the delivery of a clerk out of prison, who was taken and Incarcerated upon the breach of a statute merchant Reg. Orlg. 147.

5e apparatus — Not carried into the 5th edition (1979).

## CLERICO COMVICTO GOMMISSO // GAOLS IM DEEECTTJ ORDINARU / DELIBERANDI).

An ancient writ that lay for the delivery to his ordinary of a clerk convicted of felony, where the ordinary did not challenge him according to the privilege of clerks. Reg. Orig. 69.

5e apparatus — Not carried into the 5th edition (1979).

## CLERICO INFRA SACR08 ORDINES // CON8TITUTO, NON ELIOENDO IN OF- / FICIUM.

A writ directed to those who had thrust a bailiwick or other office upon one in holy orders, charging them to release him. Reg. Orig. 143.

5e apparatus — Not carried into the 5th edition (1979).

## CLERICUS.

In Roman law. A minis- ter of religion in the Christian church; an ecclesiastic or priest Cod. 1, 3 ; Nov. 3, 123, 137. A general term, including bishops, priests, deacons, and others of inferior or- der. Brlssonlus.

In old English law. A clerk or priest; a person in holy orders; a secular priest; a clerk of a court

An officer of the royal household, having charge of the receipt and payment of moneys, etc. Fleta enumerates several of them, with their appropriate duties; as dericua coquinm, clerk of the kitchen; clericut panetr’ et

butelr’, clerk of the pantry and buttery. Lib. 2, cc. 18, 19.

— Clarions mercati. In old English law. Clerk of the market 2 Inst. 543.— Clarions parochlalis. In old English law. A parish clerk.

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Clarions at agricola at meroator, tem- pore belli, nt oret, oolat, et eonunutet, pace frnnntnr. 2 Inst 58. Clergymen, husbandmen, and merchants, in order that they may preach, cultivate, and trade, enjoy peace in time of war.

Cleriens non connnmeretnr in dnabns eccleaiis. 1 Rolle. A clergyman should not be appointed to two churches.

5e apparatus — Not carried into the 5th edition (1979).

## CLERIGOS.

In Spanish law. Clergy; men chosen for the service of God. White, New Recop. b. 1, tit 5, ch. 4.

5e apparatus — Not carried into the 5th edition (1979).

## CLERK.

In eoolesiastioal law. A per- son in holy orders; a clergyman; an individ- ual attached to the ecclesiastical state, and who has the clerical tonsure. See 4 BL Comm. 366, 367.

In praotloe. A person employed in a public office, or as an officer of a court, whose duty is to keep records or accounts.

La commercial law. A person employed by a merchant, or in a mercantile establish- ment, as a salesman, book-keeper, account- ant, amanuensis, etc., invested with more or less authority in the administration of some branch or department of the business, while the principal himself superintends the whole. State v. Barter, 58 N. H. 004; Hamuel v. State, 5 Mo. 264 ; Railroad Co. v. Trust Oo., 82 Md. 535, 84 Atl. 778, 38 L. R. A. 97.

— Clerk of arraigns. In English law. An assistant to the clerk of assise. His duties are in the crown court on circuit.— Glerb of aa- ■iae. In English law. Officers who officiate as associates on the circuits. They record all judicial proceedings done by the judges on the circuit.— Clerb of oonrt. An officer of a court of justice who has charge of the clerical part of its business, who keeps its records and seal, issues process, enters judgments and or- ders, gives certified copies from the records, etc. Peterson v. State, 45 Wis. 540; Ross v. Heathcock. 57 Wis. 89, 15 N. W. 9; Gordon v. State, 2 Tex. App. 154; U. S. v. Warren, 12 Okl. 350, 71 Pac. 685.— Clerb of enroll- ments. In English law.. The former chief officer of the English enrollment office, (g. v.) He now forms part of the staff of the central office.— ^ Clerk of tbo crown in ebaneery. See Cbown Office in Chancery.— Clerk of the house of commons. An important officer of the English house of commons. He is ap- pointed by the crown as under-clerk of the par- liaments to attend upon the commons. He makes a declaration, on entering upon his of- fice, to make true entries, remembrances, and journals of the things done and passed in the house. He signs all orders of the house, in- dorses the bills sent or returned to the lords, and reads whatever is required to be read in the honse. He has the custody of all records and other documents. May. Pari. Pr. 236. — Clerk of the market. The overseer or su- perintendent of a public market In old Eng- lish law, he was a quasi judicial officer, hav- ing power to settle controversies arising in the

market between person* dealing there. Called "clerical mercati." 4 Bl. Comm. 275.— Clerk

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of the parliament*. One of the chief offi- cers of the house of lords. He is appointed by the crown, by letters patent. On entering office he makes a declaration to make true en- tries and records of the things done and passed in the parliaments, and to keep secret all such matters as shall be treated therein. May, Pari. Pr. 238.— Clerk of the peace. In English law. An officer whose duties are to officiate at sessions of the peace, to prepare indictments, and to record the proceedings of the justices, and to perform a number of special duties in <-onnection with the affairs of the county.— Clerk of the petty hag. See Petty Bag. — Clerk of the privy seal. There are four of these officers, wno attend the lord privy seal, or. in the absence of the lord privy seal, the principal secretary of state. Their duty is to write and make out all things that are sent by warrant from the signet to the privy seal, and which are to be passed to the great seal ; and also to make out privy seals (as they are term- ed) upon any special occasion of his majesty’s affairs, as for the loan of money and such like purposes. Cowell.— Clerk of the signet.

An officer, in England, whose duty it is to at- tend on the king's principal secretary, who al- ways has the custody of the privy signet, as well for the purpose of sealing his majesty’s private letters, as also grants which pass his majesty’s hand by bill signed ; there are four of these officers. Cowell.— Clerks of Indict- ments. Officers attached to' the central crim- inal court in England, and to each circuit. They prepare and settle indictments against of- fenders. and assist the clerk of arraigns.— Clerks of record* and writ*. Officers form- erly attached to the English court of chancery, whose duties consisted principally in sealing bills of complaint and writs of execution, filing affidavits, keeping a record of suits, and certi- fying office copies of pleadings and affidavits. They were three in number, and the business was distributed among them according to the letters of the alphabet. By the judicature acts, 1873, 1875, they were transferred to the chan- cery division of the high conrt. Now, by the judicature (officers’) act, 1879, they have been transferred to the central office of the supreme court, under the title of “Masters of the Su- preme Court,” and the office of clerk of records and writs has been abolished. Sweet. — Clerk* of seat*, in the principal registry of the pro- bate division of the English high court, dis- charge the duty of preparing and passing the granth of probate and letters of administration, under the supervision of the registrars. There are six seats, the business of which is regulated by an alphabetical arrangement, and each seat has four clerks. They have to take bonds from administrators, and to receive caveats against a grant being made in a case where a will is contested. They also draw the “acts,” i. e., a short summary of each grant made, containing the name of the deceased, amount of assets, ana other particulars. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## CLERKSHIP.

The period which must be spent by a law-student in the office of a practising attorney before admission to the bar. 1 Tldd. Pr. 61, et seq. In re Dunn, 43

N. J. Law, 359, 39 Am. Rep. 600.

In old English practice. The art of draw- ing pleadings .and entering them on record la Latin,

in the ancient court hand; other- wise called “skill of pleading In actions at the common law."

5e apparatus — Carried into the 5th edition (1979).

## C LIENS.

Lat In the Roman law. A client or dependent. One who depended up- on another as his patrou or protector, adviser Bl.Law Dict.(2d Ed.)— 14

or defender, in suits at law and other diffi- culties; and was bound, in return, to pay him all respect and honor, and to serve him with his life and fortune in any extremity. Dionys. il. 10; Adams, Rom. Ant. 33.

5e apparatus — Not carried into the 5th edition (1979).

## CLIENT.

A person who employs or re- tains an attorney, or counsellor, to appear for him in courts, advise, assist, and defend him in legal proceedings, and to act for him in any legal business. McCreary v. Hoopes, 25 Miss. 428; McFarland v. Crary, 6 Wend. (N. Y.) 297; Cross v. Riggins, 50 Mo. 335.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Upjohn Co. v. United States, 449 U.S. 383 (1981)]**

The entry defines the attorney-client relationship; the central legal consequence of that relationship is the evidentiary privilege protecting confidential communications between attorney and client.

Why: The entry states the relationship but not its operative consequence. Upjohn is the leading modern statement of the corporate attorney-client privilege — the doctrine that gives the entry's definition its legal weight....

## CLIENTELA.

In old English law. C1J- entship, the state of a client; and, correla- tively, protection, patronage, guardianship.

5e apparatus — Not carried into the 5th edition (1979).

## CLIFFORD’S INN.

An inn of chancery. See Inns or Chanceby.

5e apparatus — Not carried into the 5th edition (1979).

## CLITO.

In Saxon law. The son of a king or emperor. The next heir to the throne; the Saxon adellng. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CLOERE.

A gaol; a prison or dungeon.

CLOSE, v. To finish, terminate, complete, wind up; as, to “close” an account, a bar- gain, an estate, or public books, such as tax books. Patton v. Ash, 7 Serg. & R. (I*a.) 116 ; Ooleman

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v. Garrlgues, 18 Barb. (N. Y.) 67 ; Clark v. New York, 13 N. Y. St. Rep. 292; Bilafsky v. Abraham, 183 Mass. 401, 67 N. E. 818.

To shut up, so as to prevent entrance or access by any person ; as in statutes requir- ing saloons to be “closed” at certain times, which further Implies an entire suspension of business. Kurtz v. People, 33 Mich. 282; People v. James, 100 Mich. 522, 59 N. W. 236; Harvey v. State, 65 Ga. 570; People v. Cummerford, 58 Mich. 328, 25 N. W. 203.

CLOSE, n. A portion of land, as a field, inclosed, as by a hedge, fence, or other visible lnclosure. 3 Bl. Comm. 209. The interest of a person in any particular piece of ground, whether actually inclosed or not. Locklin v. Casler, 50 How. Prac. (N. Y.) 44 ; Meade v. Watson, 67 Cal. 591, 8 Pac. 311 ; Matthews v. Treat, 75 Me. COO; Wright v. Bennett, 4 111. 258; Blakeney v. Blakeney, 6 Port. (Ala.) 115, 30 Am. Dec. 574.

The noun “close,” in its legal sense, imports a portion of land iiiclosed, but not necessarily inclosed by actual or visible barriers. The in- visible, ideal boundary, founded on limit of title, which surrounds every man’s land, con- stitutes it his close, irrespective of walls, fen- ces, ditches, or the like.

In practice. The word means termina- tion ; winding up. Thus the close of the pleadings is where the pleadings are finished, i. e., when Issue has been joined.

CLOSE, adj. In practice. Closed or seal- ed up. A term applied to writs and letters,

CLOSE!

as distinguished from those that are open or patent

—Close copies. Copies of legal documents which might be written closely or loosely at pleasure ; as distinguished from office copies, which were to contain only a prescribed num- ber of words on each sheet. — Close corpora- tion. One in which the directors and officers have the power to fill vacancies in their own number, without allowing to the general body of stockholders any choice or vote in their election. McKim ▼. Odom, 3 Bland (Md.) 416. note.— Close rolls. Rolls containing the record of the close writs (litera clausal) and grants of the king, kept with the public records. 2 Bl. Comm. 346.— Close season. In game and fish laws, this term means the season of the year In which the taking of particular game or fish is prohibited, or in which all hunting or fishing is forbidden by law. State v. Theriault, 70 Vt. 617, 41 Atl. 1030, 43 L. R. A. 200, 67 Am. St Rep. 600.— Close writs. In English law. Certain letters of the king, sealed with his great seal, and directed to particular persons and for particular purposes, which, not being proper for public inspection, are closed up and sealed on the outside, and are thence called "writs close.” 2 Bl. Comm. 346 ; Sewell, Sheriffs, 372. Writs directed to the sheriff, instead of to the lord. 3 Reeve, Eng. Law, 45.

CLOSE-HAULED . In admiralty law, this nautical term means the arrangement or trim of a vessel’s sails when she endeavors to make a progress In the nearest direction possible towards that point of the compass from which the wind blows. But a vessel may be considered as close-hauled, although she is not quite so near to the wind as she could possibly lie. Chadwick v. Packet Co., 6 El. A BL 771.

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## CLOTURE.

The procedure in delibera- tive assemblies whereby debate is dosed. In- troduced in the English parliament in the session of 1882.

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## CLOUD ON TITLE.

An outstanding claim or incumbrance which, if valid, would affect or Impair the title of the owner of a particular estate, and which apparently and on its face has that effect, but which cau be shown by extrinsic proof to be invalid or in- applicable to the estate in question. A con- veyance, mortgage, judgment, tax-levy, etc., may all, in proper cases, constitute a cloud on title. Plxley v. Huggins, 15 Cal. 133; Schenck v. Wicks, 23 Utah, 576, 65 Pac. 732: Lick v. Ray, 43 Cal. 87 ; Stoddard v. Pres- cott, 58 Mich. 542, 25 N. W. 508; Phelps v. Harris, 101 U. S. 370, 25 L. Ed. 855; Fonda v. Sage, 48 N. Y. 181 ; Rigdon v. Shirk, 127 111. 411, 19 N. E. 698 ; Bissell v. Kellogg, 60 Barb. (N. Y.) 617 ; Bank v. Lawler, 46 Conn. 245.

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## CLOUGH.

A valley. Also an allowance for the turn of the scale, on buying goods wholesale by weight.

5e apparatus — Carried into the 5th edition (1979).

## CLUB.

A voluntary, unincorporated as- sociation of persons for purposes of a social, literary, or political nature, or the like. A club is not a partnership. 2 Mees. & W. 172.

The word “club” has no very definite meaning, dubs are formed for all sorts of purposes, and

there Is no uniformity in their constitutions and rules. It is well known that clubs exist which limit the number of the members and select them with great care, which own considerable property in common, and in which the furnish- ing of food and drink to the members for money is but one of many conveniences which the mem- bers enjoy. Com. v. Pomphret, 137 Mass. 567, 50 Am. Rep. 340.

5e apparatus — Carried into the 5th edition (1979).

## CLUB-LAW.

Rule of violence; regula- tion by force ; the law of arms.

GLYPEUS, or CLIPEUS. In old English law. A shield ; metaphorically one of a no- ble family. Clypei prostrati, noble families extinct Mat Paris, 463.

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**[Scripture] — Scripture**

**[Matthew 26:52, KJV]**

for all they that take the sword shall perish with the sword.

Why: Club-law is 'rule of violence... the law of arms.' The verse is the higher law's verdict on rule by the sword: the

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instrument of violence becomes the measure of its judgment. A genuine counterpoint to the entry's conc...

## CO.

A prefix to words, meaning “with” or “in conjunction” or “Joint;" e. g., co- trustees, co-executors. Also an abbreviation for “county,” (Gilman v. Sheets, 78 Iowa, 499, 43 N. W. 299,) and for “company,” (Railroad Co. v. People, 155 I1L 299, 40 N. B. 509.)

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## COACH.

Coach is a generic term. It la a kind of carriage, and is distinguished from other vehicles, chiefly, as being a covered box, hung on leathers, with four wheels. Turnpike Co. v. Neil, 9 Ohio, 12 ; Turnpike Co. v. Frink, 15 Pick. (Mass.) 444.

5e apparatus — Not carried into the 5th edition (1979).

## COADJUTOR.

An assistant helper, or ally; particularly a person appointed to as- sist a bishop who from age or infirmity is unable to perform his duty. Olcott v. Ga- bert, 86 Tex. 121, 23 S. W. 985. Also an over- seer, (coadjutor of an executor,) and one who disseises a person of land not to his own Use, but to that of another.

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## CO-ADMINISTRATOR.

One who is a

joint administrator with .one or more others.

5e apparatus — Carried into the 5th edition (1979).

## COADUNATTO.

A uniting or combining together of persons; a conspiracy. 9 Coke, 56.

5e apparatus — Not carried into the 5th edition (1979).

## COAL NOTE.

A species of promissory note, formerly in use in the port of London, containing the phrase “value received in coals.” By the statute 3 Geo. II. c. 26, }§ 7, 8, these were to be protected and noted as inland bills of exchange. But this was re- pealed by the Btatute 47 Geo. III. sees. 2, c. 68, | 28.

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## COALITION.

In French law. An un- lawful agreement amoug several persons not to do a thing except on some conditions agreed upon; particularly, Industrial com- binations, strikes, etc.; a conspiracy.

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## CO-ASSIGNEE.

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One of two or more as- signees of the same subject-matter.

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## COAST.

The edge or margin of a coun- try bounding on the sea. It is held that the term Includes small islands and reefs natu- rally connected with the adjacent land, and rising above the surface of the water, al- though their composition may not be suffi- ciently firm and stable to admit of their bebig Inhabited or fortified; but not shoals which are perpetually covered by the water.

O. S. v. Pope, 28 Fed. Cas. 830; Hamilton v. Menifee, 11 Tex. 7Q1.

This word is particularly appropriate to the edge of the sea, while "shore” may be used of the margins of inland waters.

—Coast waters. Tide waters navigable from the ocean by sea-going craft, the term embrac- ing all waters opening directly or indirectly Into the ocean and navigable by ships coming in from the ocean of draft as great as that of the larger ships which traverse the open seas. The Britannia. 153 U. S. 130, 14 Sup. Ct. 795, 38 Ik Ed. 660; The Victory (D. C.) 63 Fed. 636; The Garden City (D. 0.) 26 Fed. 773. —Coaster. A term applied to vessels plying exclusively between domestic ports, and usually to those engaged in domestic trade, as distin- guished from vessels engaged in foreign trade and plying between a port of the United States and a port of a foreign country ; not including pleasure yachts. Belden v. Chase, 150 U. 8. 674, 14 Sup. Ct 264. 37 I* Bd. 1218.— Coast- ing; trade. In maritime law. Commerce and navigation between different places along the coast of the United States, as distinguished from commerce with ports in foreign countries. Com- mercial intercourse carried on between different districts in different states, different districts in the same state, or different places in the same district, on the sea-coast or on a navi- gable river. Steamboat Co. v. Livingston, 3 Cow. (N. Y.) 747; San Francisco v. California 8team Nav. Co.. 10 Cal. 507 ; U. S. v. Pope, 28 Fed. Cas. 630; Ravesies v. U. S. (D. C.) 35 Fed. 919.— Coastwise. Vessels '“plying

coastwise" are those which are engaged in the domestic trade, or plying between port and port in the United States, as contradistinguish- ed from those engaged in the foreign trade, or plying between a port of the United States and a port of a foreign country. San Francisco v. California Steam Nav. Co., 10 Cal. 504.

5e apparatus — Carried into the 5th edition (1979).

## COAST-GUARD.

In English law. A body of officers and men raised and equipped by the commissioners of the admiralty for the defense of the coasts of the realm, and for the more ready manning of the navy in case of war or sudden emergency, as well as for the protection of the revenue against smugglers. Mozley & Whitley.

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## COAT ARMOR.

Heraldic ensigns, in- troduced by Richard I. from the Holy Land, where they were first

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invented. Originally they were painted on the shields of the Chris- tian knights who went to the Holy Land during the crusades, for the purpose of iden- tifying them, some such contrivance being necessary in order to distinguish knights when clad in armor from one another. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

### COBRA-VENOM REACTION.

In med- ical jurisprudence. A method of serum-diag- nosis of Insanity from haemolysis (breaking up of the red corpuscles of the blood) by in- jections of the venom of cobras or other ser- pents. This test for Insanity has recently been employed in Germany and some other European countries and in Japan.

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## O

### OOCKBHX.

To place the yards of a ship at an angle with the deck. Pub. St Mass. 1882, p. 1288.

5e apparatus — Not carried into the 5th edition (1979).

### OOCKET.

In English law. A seal be- longing to the custom-house, or rather a scroll of parchment, sealed and delivered by the officers of the cnstom-house to merchants, as a warrant that their merchandises are enter- ed; likewise a sort of measure. Fleta, lib. 2, c. lx.

5e apparatus — Not carried into the 5th edition (1979).

## C

### COCKPIT.

A name which used to be given to the judicial committee of the privy council, the council-room being built on the old cockpit of Whitehall Place.

5e apparatus — Carried into the 5th edition (1979).

### COCKSETUS.

A boatman ; a cockswain. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### CODE.

A collection or compendium of laws. A complete system of positive law, scientifically arranged, and promulgated by legislative authority. Johnson v. Harrison, 47 Minn. 575, 50 N. W. 923, 28 Am. St Rep. 882; Railroad Co. v. State, 104 Ga. 831, 31

S. B. 531, 42 L. R. A. 518 ; Railroad Co. v. Weiner, 49 Miss. 739.

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The collection of laws and constitutions made by order of the Emperor Justinian is distinguished by the appellation of “The Code,” by way of eminence. See Code or Justinian.

A body of law established by the legislative authority, and intended to set forth, in generalized and systematic form, the principles of the entire law, whether written or unwritten, posi- tive or customary, derived from enactment or from precedent. Abbott

A code is to be distinguished from a digest. 33ie subject-matter of the latter Is usually reported decisions of the courts. But there are also digests of statutes. These consist of an orderly collection and classification of the existing statutes of a state or nation, while a code is promulgated as one new law cover- ing the whole field of jurisprudence.

—Code civil. The code which embodies the civil law of France. Framed in the first in- stance by a commission of jurists appointed in 1800. This code, after having passed both the tribunate and the legislative body, was promul- gated in 1804 as the “Code Civil des Francais.” When Napoleon became emperor, the name was changed to that of “Code Napoleon,” by which it is still often designated, though it is now officially styled by its original name of “Code Civil.”— Code de commerce. A French code, enacted in 1807, as a supplement to the Code Napoleon, regulating commercial transactions, the laws of business, bankruptcies, and the ju- risdiction and procedure of the courts dealing with these subjects.— Code de procedure civ- il. That part of the Code Napoleon which regulates the system of courts, their organiza- tion, civil procedure, special and extraordinary remedies, and the execution of judgments.— Code destruction oriminelle. A French code, enacted In 1808. regulating criminal pro- cedure.—Code Napoleon. See Code Civil-— Code noir. Fr. The black code. A body of laws which formerly regulated the institution of slavery in the French colonies.— Code of Jus- tinian. The Code of Justinian ( Coder Jus- tinianeus ) was a collection of imperial constitu- tions, compiled, by order of that emperor, by a commission of ten jurists, including Trihonian, and promulgated A. D. 52ti. It comprised twelve books, and was the first of the four

.COGNATIO

compilations of law which make up the Corpus Juris Civilis. This name is often met in a connection indicating that the entire Corpus Juris Civilis is intended, or, sometimes, the Digest; but its use should be confined to the Codes.— Code pfinal. The penal or criminal code of France, enacted in 1810.— Codification. The process of collecting and arranging the laws of a country or state into a code, ». e„ into a com- plete system of positive law, scientifically or- dered, and promulgated by legislative authority.

5e apparatus — Carried into the 5th edition (1979).

## CODEX.

Lat A code or collection of laws ; particularly the Code of Justinian- Also a roll or volume, and a book written on paper or parchment.

—Codex Gregor! anus . A collection of Im- perial constitutions made by Gregorius, a Bo- man jurist of the fifth century, about the middle of the century. It contained the constitu-

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tions from Hadrian down to Constantine. Mac- keld. Rom. Law, § 63.— Codex Hermogenianu. A collection of imperial constitutions made by Hermogenes, a jurist of the fifth century. It was nothing more than a supplement to the Codex Gregorianus. (supra,) containing the constitutions of Diocletian and Maximilian. Mackeld. Rom. Law, § 63.— Codex Juatinianens. A collection of imperial constitutions, made by a commission of ten persons appointed by Justinian, A. D. 528.— Codex repetitas prselectionis. The new code of Justinian ; or the new edition of the first or old code, promulgated A. D. 534. being the one now ex- tant. Mackeld. Rom. Law, | 78. Tayl. Civil Law, 22.— Codex Theodosiautis. A code com- piled by the emperor Theodosius the younger,

A. D. 438, being a methodical collection, in sixteen books, of all the imperial constitutions then in force. It was the only body of civil law publicly received as authentic in the west- ern part of Europe till the twelfth century, the use and authority of the Code of Justinian be- ing during that interval confined to the East. 1 Bl. Comm. 81.— Codex vetus. The old code. The first edition of the Code of Justinian ; now lost. Mackeld. Rom. Law, g 70.

5e apparatus — Carried into the 5th edition (1979).

## CODICIL.

A testamentary disposition subsequent to a will, and by which the will Is altered, explained, added to, subtracted from, or confirmed by way of republication, but in no case totally revoked. Lamb v. Lamb, 11 Pick. (Mass.) 376; Dunham v. Averill, 45 Conn. 79, 29 Am. Rep. 642; Green v. Lane, 45 N. C. 113 ; Grimball v. Patton, 70 Ala. 031; Proctor v. Clarke, 3 Redf. Sur. (N. Y.) 448.

A codicil is an addition or supplement to a will, either to add to, take from, or alter the provisions of the will. It must be exe- cuted with the same formality as a will, and, when admitted to probate, forms a part of the will. Code Ga. 1882, g 2404.

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**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: A codicil is a testamentary disposition. The verse states the juridical nature of the instrument class: a testament takes force only at the testator's death. Directly illuminates what kind of legal act a codicil is.

## CODICHXUS.

In the Roman law. A codicil; an informal and inferior kind of will, in use among the Romans.

5e apparatus — Not carried into the 5th edition (1979).

## COEMPTIO.

Mutual purchase. One of the modes in which marriage was contracted among the Romans. The man and the woman delivered to each other a small piece of mon- ey. The man asked the woman whether she would become to him a materfamilias, (mis- tress of his family,) to which she replied that she would. In her turn she asked the man

whether he would become to her a paterfa- milias. (master of a family.) On his reply- ing in the affirmative, she delivered her piece of money and herself into his hands, and so became his wife. Adams, Rom. Ant. 501.

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## CO-EMPTION.

The act of purchasing the whole quantity of any commodity. Whar- ton.

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## COERCION.

Compulsion; force; duress. It may be either actual , (direct or positive,) where physical force is put upon a man to compel him to do an act against his will, or implied, (legal or constructive.) where the relation of the parties is such that one is un- der subjection to the other, and is thereby constrained to do what his free will would refuse. State v. Darlington, 153 Ind. 1. 53 N.

E. 925 ; Chappell v. Trent, 90 Va. 849, 19 S.

E. 314; Itadlch v. Hutchins, 95 U. S. 213, 24 L. Ed. 409; Peyser v. New York, 70 N. Y. 497. 26 Am. Rep. 624; State v. Boyle, 13 R.

I. 538.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Contracts — a contract induced by duress is voidable]**

The entry defines coercion/duress in its kinds but not its operative contract-law consequence: an agreement procured by duress is voidable at the victim's election.

Why: Voidability is the keystone legal consequence of the duress the entry defines. Used the looser [Law:] form because I would not state exact Restatement section numbers from memory; the principle itself is certain.

**[Scripture] — Scripture**

**[Matthew 5:41, KJV]**

And whosoever shall compel thee to go a mile, go with him twain.

Why: The entry defines compulsion; the verse presupposes legal compulsion as a fact of life (the Roman impressment right) and prescribes conduct under it. It names the coerced subject the entry defines — kept as an honest...

**[Humanity] — Humanity / Fiction & Film**

**[Stanley Kubrick, A Clockwork Orange, 1971]**

(paraphrase) The Ludovico technique: the state drugs and aversion-therapies Alex into 'good' behavior, dramatizing coercion as the forced imposition of the will from outside. (paraphrase)

Why: Entry defines coercion as compulsion, force, duress. The Ludovico treatment is the canonical film illustration of coercion-as-technique; paraphrase marked, no verbatim line claimed.

## CO-EXECUTOR.

One who is a joint executor with one or more others.

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## COFFEE-HOUSE.

A house of entertain- ment where guests are supplied with cof- fee and other refreshments, and sometimes with lodging. Century Diet A cofTee-house is not an inn. Thompson v. Lacy, 3 Barn. & Aid. 283; Pitt v. Laming, 4 Camp. 77; In- surance Co. v. Langdou, 6 Wend. (N. Y.) 627; Com. v. Woods, 4 Ky. Law Rep. 262.

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## COFFERER OF THE QUEEN'S / HOUSEHOLD.

In English law. A prin- cipal officer of the royal establishment, next under the controller, who, In the counting- house and elsewhere, had a special charge and oversight of the other officers, whose wages he paid.

Cogitation!* pcenam nemo patitnr. No

one is punished for his thoughts. Dig. 48, 19, 18.

5e apparatus — Not carried into the 5th edition (1979).

## COGNATES.

(Lat cognati.) Relations by the mother's side, or by females. Mac- keld. Rom. Law, g 144. A common term in Scotch law. Ersk. Inst 1, 7, 4.

5e apparatus — Not carried into the 5th edition (1979).

## COGNATI.

Lat. In the civil law. Cog- nates; relations by the mother's side. 2 Bl. Comm. 235. Relations in the line of the mother. Hale, Com. Law, c. xi. Relations by or through females.

5e apparatus — Not carried into the 5th edition (1979).

## COGNATIO.

Lat. In the civil law.

Cognation. Relationship, or kindred gener- ally. Dig. 38, 30, 4, 2 ; Inst. 3, 6, pr.

Relationship through females, as distin- guished from agnatio, or relationship through males. Agnatio a patre sit, cog- natio a matre. Inst 3, 5, 4. See Agnatio.

In canon law. Consanguinity, as distin- guished from affinity. 4 Reeve, Eng. Law, 56-58.

Consanguinity, as including affinity. Id.

5e apparatus — Not carried into the 5th edition (1979).

## COGNATION.

In the civil law. Signi- fies generally the kindred which exists be- tween two persons who are united by ties of blood or family, or both.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 17:26, KJV]**

And hath made of one blood all nations of men for to dwell on all the face of the earth.

Why: The entry's root concept is the blood-tie as the ground of kindred. The verse states the universal ground —

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one blood — illuminating the concept's foundation. (Paul's Areopagus address; narrative of his speech, not de...

# O

## OOGNATUS.

Lat. In the civil law. A relation by the mother’s side; a cognate.

A relation, or kinsman, generally.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COGNITIO.

Ia old English law. The

acknowledgment of a fine; the certificate of such acknowledgment

In the Roman law. The Judicial exam- ination or hearing of a cause.

5e apparatus — Not carried into the 5th edition (1979).

## COGNITIONES.

Ensigns and arms, or a military coat painted with arms. Mat. Par. 1250.

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## COGNITIONIBUS MITTENDIS.

. In

English law. A writ to a Justice of the com- mon pleas, or other, who has power to take a tine, who, having taken the fine, defers to certify it, commanding him to certify It. Now abolished. Reg. Orlg. 68.

COGNITIONIS CAUSA:. In Scotch practice. A name given to a Judgment or decree pronounced by a court, ascertaining the amount of a debt against the estate of a deceased landed proprietor, on cause shown, or after a due investigation. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## COGNITOR.

In the Roman law. An ad- vocate or defender in a private cause; one who defended the cause of *a person who was present. Calvin. Lex. Jurid.

5e apparatus — Not carried into the 5th edition (1979).

## COGNIZANCE.

Ia old practice. That part of a fine In which the defendant ac- knowledged that the land In question was the right of the complainant. From this the fine itself derived Its name, as being sur cognizance de droit, etc., and the parties their titles of cognizor and cognizee.

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Ia modera practice. Judicial notice or knowledge ; the Judicial hearing of a cause ; Jurisdiction, or right to try and determine causes ; acknowledgment ; confession ; recognition.

Of pleas. Jurisdiction of causes. A priv- ilege granted by the king to a city or town to hold pleas within the same.

Claim of cognisance (or of coansaace) Is an Intervention by a third person, de- manding Judicature in the cause against the plaintiff, who has chosen to commence his action out of claimant’s court. 2 Wils. 409; 2 Bl. Comm. 350, note.

Ia pleading. A species of answer In the action of replevin, by which the defendant acknowledges the taking of the goods which are the subject-matter of the action, and al- so that he has no title to them, but Justifies the taking on the ground that It was done by

the command of one who was entitled to the property.

In the process of levying a fine, It is an acknowledgment by the deforciant that the lands in question belong to the complainant.

In the language of American Jurispru- dence, this word is used chiefly in the sense of Jurisdiction, or the exercise of Jurisdic- tion; the judicial examination of a matter, or power and authority to make It Web- ster v. Com., 5 Cush. (Mass.) 400; Clarion County v. Hospital, 111 Pa. 339, 3 Atl. 97.

Judicial cognisance is judicial notice, or knowledge upon which a judge is bound to act without having it proved in evidence.

— Cognizee. The party to whom a fine was levied. 2 Bl. Comm. 351.— Cognizor. In old conveyancing. The party levying a fine. 2 Bl. Comm. 350, 351.

5e apparatus — Not carried into the 5th edition (1979).

## COGNOMEN.

In Roman law. A man’s family name. The first name (prwnomcn) was the proper name of the Individual ; the second (nomen) indicated the gens or tribe to which he belonged ; while the third ( cog- nomen) denoted his family or house.

In English law. A surname. A name added to the nomcn proper, or name of the individual; a name descriptive of the fam- ily.

Cognomen majornm est ex sanguine traetum, hoc intrinseeum est; agnomen extrlnsecum ah eventu. 6 Coke, 65. The cognomen is derived from the blood of an- cestors, and is intrinsic; an agnomen arises from an event, and is extrinsic.

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## COGNOVIT ACTIONEM.

(He has con- fessed the action.) A defendant's written confession of an action brought against him, to which he has no available defense. It is usually upon condition that he shall be al- lowed a certain time for the payment of the debt or damages, and costs. It is supposed to be given in court, and it impliedly au- thorizes the plaintiff’s attorney to sign

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judg- ment and Issue execution. Mallory v. Kirk- patrick, 54 . N. J. Eq. 50, 33 Atl. 205.

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## COHABITATION.

Living together; liv- ing together as husband and wife.

Cohabitation means having the same habita- tion, not a sojourn, a habit of visiting or re- maining for a time ; there must be something more than mere meretricious intercourse. In re Yardley’s Estate, 75 Pa. 211 ; Cox v. State, 117 Ala. 103, 23 South. 806, 41 L. It. A. 760. 07 Am. St. Rep. 166; Turney v. State. 00 Ark. 259, 29 S. W. 893 ; Com. v. Lucas, 158 Mass. 81, 32 N. E. J 033 : Jones v. Com.. 80 Va. 20; Brinckle v. Brinckle, 12 Phila. (Pa.) 234.

Cohseredes una persona censentur, propter unitatem juris quod habent. Co.

Litt. 163. Co-heirs are deemed as one per- son, on account of the unity of right which they possess.

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The scriptural charter of the marital household — cleaving, one flesh — which is precisely what 'living together as husband and wife' means in law. (Narrator's ordinance, not deity's verbatim speech.)

## COHJERES.

Lat. Iu civil and old Eng- lish law. A co-heir, or Joint heir.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:17, KJV]**

And if children, then heirs; heirs of God, and joint-heirs with Christ.

Why: Same legal term, same legal concept — joint heirship; Paul uses the juristic category itself. (Apostolic, not deity speech.)

# O

## OO-HEIB.

One of several to whom an Inheritance descends.

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# G

## GO-HEIRESS.

A Joint heiress. A wo- man who has an equal share of an inherit- ance with another woman.

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# C

## COHUAGICM.

A tribute made by those who meet promiscuously in a market or fair. Du Cange.

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## COIF.

A title given to serjeants at law, who are called “serjeants of the coif,” from the coif they wear on their heads. The use of this coif at first was to cover the clerical tonsure, many of the practising serjeants be- ing clergyman who had abandoned their pro- fession. It was a thin linen cover, gathered together in the form of a skull or helmet; the material being afterwards changed Into white silk, and the form eventually into the black patch at the top of the forensic wig, which is now the distinguishing mark of the degree of serJeant at law. (Cowell; Foss, Judg.; 8 Steph. Comm. 272, note.) Brown.

COIN, v. To fashion pieces of metal into a prescribed shape, weight, and degree of fineness, and stamp them with prescribed devices, by authority of government, in or- der that they may circulate as money. Le- gal Tender Cases, 12 Wall. 484, 20 L. Ed. 287 ; Thayer v. Hedges, 22 Ind. 301; Bank v. Van Dyck, 27 N. Y. 490; Borie v. Trott, 5 Phila. (Pa.) 408; Latham v. U. S., 1 Ct Cl. 154; Hague v. Powers, 39 Barb. (N. Y.) 466.

COIN, «. Pieces of gold, silver, or other metal, fashioned into a prescribed shape, weight, and degree of fineness, and stamped, by authority of government, with certain marks and devices, and put into circulation as money at a fixed value. Com. v. Gal- lagher, 16 Gray (Mass.) 240; Latham v. U. S., 1 Ct CS. 160; Borie v. Trott 6 Phila. (Pa.) 403.

Strictly speaking, coin differs from money, as the species differs from the genus. Money is any matter, whether metal, paper, beads, shells, etc., which has currency as a medium in com- merce. Coin is a particular species, always made of metal, and struck according to a certain process called “coinage.” Wharton.

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## COINAGE.

The process or the function of coining metallic money; also the great mass of metallic money in circulation. Mey- er v. Roosevelt 25 How. Prac. (N. Y.) 105;

U. S. v. Otey (C. C.) 31 Fed. 70.

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5 — coinage power]**

The entry defines coining as done 'by authority of government'; the constitutional grant of that authority is Congress's power to coin money and regulate its value.

Why: The COIN v. text folded into the neighboring entry defines coin as fashioned and stamped 'by authority of government'; the Coinage Clause is the precise constitutional source of that authority. Real, verbatim-quoted g...

**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The verse presupposes coined money bearing the sovereign's image and stamp — coinage as the sovereign's act — and draws the jurisdiction line from it. (Jesus' own words → deity verbatim.)

## COITUS.

In medical jurisprudence. Sexual intercourse; carnal copulation.

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## COJUDICES.

Lat In old English law. Associate Judges having equality of power with others.

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## COED WATER ORDEAL.

The trial which was anciently used for the common

• sort of people, who, having a cord tied about them under their arms, were cast into a river; if they sank to the bottom until they were drawn up, which was in a very short time, then were they held guiltless; but such as did remain upon the water were held culpable, being, as they said, of the water re- jected and kept up. Wharton.

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**[Scripture] — Scripture**

**[Numbers 5:27, KJV]**

that the water that causeth the curse shall enter into her, and become bitter.

Why: The Mosaic water-ordeal for the suspected wife — a juridical procedure in which water renders the verdict. Different rite, same juridical species (trial by ordeal through water); noted as parallel, not identical. (Spo...

## COLIBERTUS.

In feudal law. One who, holding in free socage, was obliged to do certain services for the lord. A middle class of tenants between servile and free, who held their freedom of tenure on con- dition of performing certain services. Said to be the same as the oonditionales. Cowell.

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## COLLATERAL.

By the side; at the Bide; attached upon the side. Not lineal, but upon a parallel or diverging line. Ad- ditional or auxiliary; supplementary; co-op- erating.

—Collateral aet. In old practice. The name “collateral act” was given to any act (except the payment of money) for the performance of which a bond, recognizance, etc., was given as security.— Collateral ancestors. A phrase , sometimes used to designate uncles and aunts, and other collateral antecessors, who are not strictly ancestors. Banks v. Walker, 3 Barb.

Ch. (N. Y.) 438, 446.— Collateral assurance. That which is made over and above the principal assn ranee or deed itself.— Collateral at- tack. See “Collateral impeachment," infra.— Collateral facts. Such as are outside the controversy, or are not directly connected with the principal matter or issue in dispute. Sum- merour v. Felker, 102 Ga. 254, 29 S. E. 448; Garner v. State, 76 Miss. 513, 25 South. 363. —Collateral Impeachment. A collateral impeachment of a judgment or decree is an at- tempt made to destroy or evade its effect as an estoppel, by reopening the merits of the cause or by showing reasons why the judgment should not have been rendered or should not have a con- clusive effect, in a collateral proceeding, t. e., in any action other than that in which the judg- ment was rendered ; for, if this be done upon appeal, error, or certiorari, the impeachment is direct. Burke v. Loan Ass’n, 25 Mont. 315. 64 Pac. 881, 87 Am. St. Rep. 416 ; Crawford v. McDonald. 88 Tex. 626, 33 S. W. 325 ; Mor- rill v. Morrill, 20 Or. 96. 25 Pac. 362, 11 L. R.

A. 1C5, 23 Am. St. Rep. 95 ; Harman v. Moore, 112 Ind. 221, 13 N. E. 718; Schneider v. Sellers, 25 Tex. Civ. App. 226, 61 S. W. 541 ; Blu- er v. Mereke. Ill Ky. 299. 63 S. W. 771.- Collateral inheritance ton. A tax levied upon the collateral devolution of property by will or under the intestate law. In re Bittin- geris Estate, 129 Pa. 338, 18 Atl. 132; Strode v. Com., 52 Pa. 181.— Collateral kinsmen. Those who descend from one and the same com- mon ancestor, but not from one another. — Col- lateral security. A security given in addi- tion to the direct security, and subordinate to it, intended to guaranty its validity or con- vertibility or insure its performance ; so that, if the direct security fails, the creditor may fali back upon the collateral security. Butler v. Rockwell, 14 Colo. 125, 23 Pac. 462; McCor- mick v. Bank (C. C.) 57 Fed. 110; Munn v. McDonald, 10 Watts (Pa.) 273; In re Wad- dell-Entz Co., 67 Conn. 324, 35 Atl. 257. Col- lateral security, in bank phraseology, means some security additional to the personal obliga- tion of the borrower. Shoemaker v. Bank, 2 Abb. (U. S.) 423. Fed. Cas. No. 12.801.— Col- lateral undertaking. “Collateral” and "orig- inal” have become the technical terms whereby

to distinguish promises that are within, and such* as are not within, the statute of frauds. Elder ▼. Warfield, 7 Har. & J. (Md.) 391.

A* to collateral "Consanguinity," “De- scent,” “Estoppel," “Guaranty," “Issue," “Limitation,” “Negligence," “Proceeding," and “Warranty,” see those titles.

COLLATERALS ET SOCIL The an- cient title of masters In chancery.

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## COLLATIO BONORUM.

LaL A join- ing together or contribution of goods Into a common fund. This occurs where a portion of money, advanced by the father to a son or daughter, is brought Into hotchpot. In order to have an equal dlstrlbutory share of his per- sonal estate at his death. See Collation.

5e apparatus — Not carried into the 5th edition (1979).

## COIXATXO 8IGNORTJM.

In old Eng- lish law. A comparison of marks or seals. A mode of testing the genuineness of a

seal, by comparing It with another known to be genuine. Adams. See Bract, fol. 389b.

5e apparatus — Not carried into the 5th edition (1979).

## COLLATION.

In the civil law. The collation of goods is the supposed or real re- turn to the mass of the succession which an heir makes of property which he received In advance of his share or otherwise, in order that such property may be divided together with the other effects of the succession. Civ. Code La. art 1227; Miller v. Miller, 106 La. 257, 29 South. 802.

The term Is sometimes used also In c<\n- mon-law jurisdictions In the sense given above. It is synonymous with “hotchpot.” Moore v. Freeman, 60 Ohio St 592, 35 N. E. 502.

In practice. The comparison of a copy with Its original to ascertain its correctness ; or the report of the officer who made the comparison.

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## COLLATION OF SEALS.

When upon the same label one seal was set on the back or reverse of the other. Wharton.

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## COLLATION TO A BENEFICE.

In ec- clesiastical law. This occurs where the bish- op and patron are one and the same person, In which case the bishop cannot present the clergyman to himself, but does, by the one act of collation or conferring the benefice, the whole that is done in common cases both by presentation and institution. 2 BL Comm. 22.

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## COLLATIONS FACTA UNI POST / MORTEM ALTERIUS.

A writ directed to justices of the common pleas, commanding them to issue their writ to the bishop, for the admission of a clerk In the place of an- other presented by the crown, where there had been a demise of the crown during a suit ; for judgment once passed for the king's clerk, and he dying before admittance, the

king may bestow his presentation on another. Reg. Orig. 31.

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## COLLATIONS HEREMITAOH.

In Old

English law. A writ whereby the king con- ferred the keeping of an hermitage upon a Clerk. Reg. Orig. 303, 308.

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## COLLECT.

To gather together; to bring scattered things (assets, accounts, articles of property) Into one mass or fund.

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To collect a debt or claim is to obtain pay- ment or liquidation of It, either by personal solicitation or legal proceedings. White v. Case, 18 Wend. (N. Y.) 544; Ryan v. Tudor, 81 Kan. 366, 2 Pac. 797; Purdy v. Independ- ence, 75 Iowa, 356, 39 N. W. 641 ; Mclnerny v. Reed, 23 Iowa, 414; Taylor v. Kearney County, 35 Neb. 381, 53 N. W. 211.

—Collect oa delivery. See C. O. D. — Col- lector. One authorized to receive taxes or oth- er impositions ; as “collector of taxes.” A per- son appointed by a private person to collect the credits due him. — Collector of decedent’s estate. A person temporarily appointed by the probate court to collect rents, assets, interest, Dills receivable, etc., of a decedent's estate, and act for the estate in all financial matters re- quiring immediate settlement. Such collector is usually appointed when there is protracted liti- gation os to the probate of the will, or as to the person to take out administration, and his duties cease as soon as an executor or admin- istrator is qualified.— Collector of the cus- toms. An officer of the United States, ap- pointed for the term of four years. Act May 15, 1820, 8 1; 3 Story, U. 8. Laws, 1700.— Col- lection. Indorsement “for collection." See Fob Collection.

5e apparatus — Carried into the 5th edition (1979).

**COLLEGA.**

In the civil law. One in- vested with joint authority. A colleague; an associate.

COLLEGATARrcS. Lat. In the civil law. A co-legatee. Inst 2, 20, 8.

5e apparatus — Not carried into the 5th edition (1979).

# G

**GOLLEOATORY.**

A co-legatee; a per- son who has a legacy left to him in common with other persons.

5e apparatus — Not carried into the 5th edition (1979).

# C

**COLLEGE.**

An organized assembly or collection of persons, established by law, and empowered to co-operate for the perform- ance of some special function or for the pro- motion of some common object, which may be educational, political, ecclesiastical, or scientific In its character.

The assemblage of the cardinals at Rome is called a “college.” So, In the United States, the body of presidential electors is called the “electoral college.”

In the most common use of the word, it designates an Institution of learning (usually incorporated) which offers instruction in the liberal arts and humanities and in scientific branches, but not in the technical arts or those studies preparatory to admission to the

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professions. Com. v. Banks, 198 Pa. 397, 48 Atl. 277; Chegaray v. New York, 13 N.

Y. 229; Northampton County v. Lafayette College. 128 Pa. 132, 18 Atl. 516.

In England, it is a civil corporation, Corn-

**[TEXT INCOMPLETE — scan limitation]**

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

The entry treats the college as a civil corporation holding privileges by charter; the leading case on the legal status of such a charter holds it a contract the state cannot impair.

Why: Dartmouth College is the foundational decision on incorporated colleges — a college charter is a contract protected by the Contract Clause. It gives the entry's 'civil corporation' framing its operative legal conseque...

## COLLUSION.

pany or society of men, having certain priv- ileges, and endowed with certain revenues, founded by royal license. An assemblage of several of these colleges Is called & “univer- sity.” Wharton.

5e apparatus — Carried into the 5th edition (1979).

## COLLEGIA.

In the civil law. The guild of a trade.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GOLLEGXALXTER.

In & corporate ca- pacity. 2 Kent, Comm. 296.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COLLEGIATE CHURCH.

In English ecclesiastical law. A church built and en- dowed for a society or body corporate of a dean or other president, and secular priests, as canons or prebendaries in the said church; such as the churches of Westminster, Wind- sor, and others. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## COLLEGIUM.

Lat In the civil law. A word having various meanings; e. g., an as- sembly, society, or company; a body of bish- ops ; an army ; a class of men. But the principal idea of the word was that of an association of individuals of the same rank and station, or united for the

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pursuit of some business or enterprise. Sometimes, a corporation, as in the maxim “tres faciunt collegium” (1 Bl. Comm. 469), though the more usual and proper designation of a cor- poration was “universltas.”

— Collegium ammiralitatis. The college or society of the admiralty.-- Collegium illici- tum. One which abused its right, or assembled for any other purpose than that expressed in its charter.— Collegium Ueitnm. An assem- blage or society of men united for some useful purpose or business, with power to act like a single individual. 2 Kent, COmm. 269.

Collegium eat soeietaa plurium cor- poram simul haUtantlsm Jenk. Cent. 229. A college is a society of several persons dwelling together.

5e apparatus — Not carried into the 5th edition (1979).

## COLLIERY.

This term is sufficiently wide to include all contiguous and connected veins and seams of coal which are worked as one concern, without regard to the closes or pieces of ground under which they are car- ried, and apparently also the engines and machinery in such contiguous and connected veins. MacSwin. Mines, 25. See Carey v. Bright, OS Pa. 85.

5e apparatus — Not carried into the 5th edition (1979).

## COLLIGENDUM BONA DEFUNCTI.

See Ad Colligendum, etc.

5e apparatus — Not carried into the 5th edition (1979).

## COLLISION.

In maritime law. The act of ships or vessels striking together.

In its strict sense, collision means the im- pact of two vessels both moving, and is dis- tinguished from allision, which designates the striking of a moving vessel against one that is stationary. Bqt collision is used in a broad sense, to include allision, and perhaps other species of encounters between vessels. Wright v. Brown, 4 Ind. 97, 58 Am. Dec. 622 ; London Assur. Co. v. Companhla De Moagens,

Fed. 258, 15 C. C. A. 379 ; Towing Co. v. .Etna Ins. Co., 23 App. Div. 152, 48 K. Y. Supp. 927.

The term la not inapplicable to cases where a stationary vessel is struck by one under way. strictly termed "allision ;” or where one vessel is brought into contact with another by swing- ing at anchor. And even an injury received by a vessel at her moorings, in consequence of being violently rubbed or pressed against by a second vessel lying along-side of her, in conse- quence of a collision against such second ves- sel by a third one under way, may be compensat- ed for, under the general bead of “collision.” as well as an injury which is the direct result of a “blow,” properly so called. The Moxey, Abb. Adm. 73, Fed. Cas. No. 9,894.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Pennsylvania Rule — in admiralty collision cases, a vessel in violation of a navigation**

**statute bears the burden of showing the fault could not have caused the collision]**

The entry defines maritime collision and its species; the signature burden-allocation doctrine in collision litigation is the Pennsylvania Rule — a vessel violating a statutory navigation rule must show the violation could not have caused the collision.

Why: The entry states what collision is but not how fault is allocated when a navigation statute is breached; the Pennsylvania Rule is that operative principle in American admiralty law. Looser [Law:] form used rather than...

## COLLXSTRXGIUM.

The pillory.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Hawthorne, The Scarlet Letter, 1850]**

(paraphrase) Hawthorne opens with Hester Prynne standing shamed on the scaffold before the town — public-shame punishment as the machinery of moral law. (paraphrase)

Why: Entry defines the pillory. Hester's scaffold is not technically a pillory, so marked paraphrase and framed as illustration, not identity; judged a genuine literary illumination of public-shame punishment rather than a...

## COLLITXGANT.

One who litigates with another.

5e apparatus — Not carried into the 5th edition (1979).

# O

## OOLLOBTUM.

A hood or covering for the shoulders, formerly worn by serjeants at law.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COLLOCATION.

In French law. The arrangement or marshaling of the creditors of an estate In the order in which they are to be paid according to law. Merl. Repert.

5e apparatus — Not carried into the 5th edition (1979).

## COLLOQUIUM.

One of the usual parts of the declaration in an action for slander. It is a general averment that the words complained of were spoken “of and concern- ing the plaintiff,” or concerning the extrin- sic matters alleged in the inducement, and Its office is to connect the whole publication with the previous statement. Van Vechten v. Hopkins, 5 Johns. (N. Y.) 220, 4 Am. Dec. 839 ; Lukehart v. Byerly, 53 Pa. 421 ; Squires v. State, 39 Tex. Cr. R. 96, 45 S. W. 147, 73 Am. St Rep. 904; Vanderlip v. Roe. 23 Pa. 82; McClaughry v. Wetmore, 6 Johns. (N. YJ 82,

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5 Am. Dec. 194.

An averment that the words in question are spoken of or concerning some usage, re- port, or fact which gives to words otherwise indifferent the peculiar defamatory meaning assigned to them. Carter v. Andrews, 16 Pick. (Mass.) 6.

5e apparatus — Not carried into the 5th edition (1979).

## COLLUSION.

A deceitful agreement or compact between two or more persons, for the one party to bring an action against the other for some evil purpose, as to defraud a third party of his right Cowell.

A secret arrangement between two or more persons, whose interests are apparently conflicting, to make use of the forms and proceedings of law in order to defraud a third person, or to obtain that which justice would not give them, by deceiving a court or it officers. Baldwin v. New York, 45 Barb. (N. Y.) 359; Belt v. Blackburn, 28 Md. 235; Railroad Co. v. Gay, 86 Tex. 671, 26 S. W. 599, 25 L. R, A. 52; Balch v. Beach, 119 Wis. 77. 95 N. W. 132.

In divorce proceedings, collusion is an agreement between husband and wife that

one of them shall commit, or appear to hare committed, or be represented In court as haring committed, acts constituting a cause of divorce, for the purpose of enabling the other to obtain a dlrorce. Clrll Code Cal. { 114. But It also means connivance or con- spiracy In initiating or prosecuting the suit, as where there Is a compact for mutual aid in carrying it through to a decree. Beard

T. Beard, 66 Cal. 854, 4 Pac. 229; Pohlman ▼. Pohlman, 60 N. J. Eq. 28, 46 Atl. 658; Drayton v. Drayton, 54 N. j. Eq. 298, 38 Atl. 25.

5e apparatus — Carried into the 5th edition (1979).

## COLLYBISTA.

In the dril law. A mon- ey-changer ; a dealer In money.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:12, KJV]**

And Jesus went into the temple of God, and cast out all them that sold and bought in the temple, and overthrew the tables of the moneychangers, and the seats of them that sold doves.

Why: The most famous scriptural scene of the money-changer's office — tables, temple, trade — showing the occupation the entry names in its historical setting. (Narrative about Jesus, not His verbatim speech: no red-letter…

## COLLYBUM.

In the dril law. Ex- change.

5e apparatus — Not carried into the 5th edition (1979).

## COLNE.

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In Saxon and old English law. An account or calculation.

5e apparatus — Carried into the 5th edition (1979).

## COLONY.

A dependent political com- munity, consisting of a number of citizens of the same country who hare emigrated there- from to people another, and remain subject to the mother-country. U. S. r. .The Nancy, 3 Wash. C. C. 287, Fed. Cas. No. 15,854.

A settlement In a foreign country pos- sessed and cultivated, either wholly or par- tially, by Immigrants and their descendants, who hare a political connection with and subordination to the mother-country, whence they emigrated. In other words, it is a place peopled from some more andent city or coun- try- Wharton.

— Colonial laws. In America, this term desig- nates the body of law in force in the thirteen original colonies before the Declaration of In- dependence. In England, the term signifies the laws enacted by Canada and the other pres- ent British colonies.— Colonial office. In the English government, this is the department of state through which the sovereign appoints colo- nial governors, etc., and communicates with them. Until the year 1854, the secretary for the colonies was also secretary for war.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Conrad, Heart of Darkness, 1899]**

Kurtz's dying words sum the colonial enterprise's moral void: "The horror! The horror!"

Why: Entry defines a colony as a dependent political community planted by emigration. The verbatim line is certain (the novel's final judgment on the colonial project) and genuinely illuminates the human reality behind the...

# G

## GOLONU8.

In old European, law. A husbandman ; an Inferior tenant employed in cultivating the lord’s land. A term of Ro- man origin, corresponding with the Saxon ceort 1 Spence, Ch. 51.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COLOR.

An appearance, semblance, or timulacrum, as distinguished from that which la real. A prima facie or apparent right Hence, a deceptive appearance ; a plausible, assumed exterior, concealing a lack of real- ity ; a disguise or pretext Railroad Ct>. v. Allfree, 64 Iowa, 500, 20 N. W. 779; Berks County v. Railroad Co., 167 Pa. 102, 31 Atl. 474; Broughton v. Haywood, 61 N. C. 383.

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In pleading. Ground of action admitted to subsist in the opposite party by the plead- ing of one of the parties to an action, which is so set out as to be apparently valid, but which Is In reality legally Insufficient.

This was a term of the ancient rhetoricians, and early adopted into the language of pleading. It was an apparent or prima facie right; and the meaning of the rnle that pleadings in confession and avoidance should give color was that they should confess the matter adversely alleged, to such an extent, at least, as to admit some apparent right in the opposite party, which required to be en- countered and avoided by the allegation of new matter. Color was either express, i. e., inserted in the pleading, or Implied, which was naturally inherent In the structure of the pleading. Steph. Pl. 233; Merten v. Bank, 5 Okl. 585, 49 Pac. 913.

The word also means the dark color of the skin showing the presence of negro blood; and hence It is equivalent to African descent or parentage.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 7:15, KJV]**

Beware of false prophets, which come to you in sheep's clothing, but inwardly they are ravening wolves.

Why: The entry's genus is the assumed exterior concealing the lack of reality — color as pretext. The verse is its archetype: sheep's clothing over the ravening wolf. Genuine bearing on the legal concept. (Jesus' own words...

## COLOB OF AUTHORITY.

That sem- blance or presumption of authority sustain- ing the acts of a public officer which is de- rived from his apparent title to the office or from a writ or other process in his hands apparently valid and regular. State v. Oates, 86 Wis. 634, 57 N. W. 296, 39 Am. St Rep. 912; Wyatt v. Monroe, 27 Tex. 268.

5e apparatus — Not carried into the 5th edition (1979).

## COLOR OF LAW.

The appearance or semblance, without the substance, of legal right. McCain v. Des Moines. 174 U. S. 168. 19 Sup. CL 644, 43 L. Ed. 936.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 42 U.S.C. § 1983 — civil action for deprivation of rights under color of state law]**

The entry states the abstract meaning — appearance without substance of legal right; the phrase's great operative life is as the jurisdictional trigger of the federal civil-rights action for deprivations 'under color of' state law.

Why: Section 1983 makes 'under color of' state law the gateway to federal civil-rights suits; the entry's definition is the abstract sense of the exact phrase the statute employs. Real statute, genuine illumination rather...

**[Hip-hop] — Hip-hop**

**[KRS-One, 'Sound of da Police', 1993]**

"Woop-woop! That's the sound of da police! / Woop-woop! That's the sound of the beast!" — the

track's whole thesis is that the badge carries the appearance of lawful authority while operating as the plantation overseer ("officer from overseer"), i.e. the semblance of legal right without its substance.

Why: Added because the song is hip-hop's canonical statement of exactly what the term defines: authority that wears the uniform of law while lacking its substance. Hook verified verbatim against multiple lyric sources; the...

## COLOR OF OFFICE.

An act unjustly done by the countenance of an office, being grounded upon corruption, to which the office is as a shadow and color. Plow. 64.

A claim or assumption of right to do an act by virtue of an office, made by a person who is legally destitute of any such right. Feller v. Gates, 40 Or. 543, 67 Pac. 416, 5ft

L. R. A. 630, 91 Am. St. Rep. 492; State v. Fowler, 88 Mi 601, 42 Atl. 201, 42 L. R. A. 849, 71 Am. St. Rep. 452; Bishop v. Mc- Glllis, 80 Wis. 575, 50 N. W. 779, 27 Am. St Rep. 63; Decker v. Judson, 16 N. Y. 439; Mason v. Crabtree, 71 Ala. 481; Morton v. Campbell, 37 Barb. (N. Y.) 181; Luther v. Banks, 111 Ga. 374, 36 S. E. 826; People v. Schuyler, 4 N. Y. 187.

The phrase implies, we think, some official power vested in the actor, — he must be at least officer de facto. We do not understand that an act of a mere pretender to an office, or false personator of an officer, is said to be done by color of office. And it implies an illegal claim of authority, by virtue of the office, to do the act or thing in question. Burrall v. Acker, 23 Wend. (N. Y.) 606, 35 Am. Dec. 582.

5e apparatus — Carried into the 5th edition (1979).

## COLOR OF TITLE.

The appearance, semblance, or timulacrum of title. Any fact, extraneous to the act or mere will of the claimant which has the appearance, on its face, of supporting his claim of a present title to land, but which, for some defect In reality falls short of establishing It. Wright v. Mattlson, 18 How. 56, 15 L. Ed. 280; Camerou v. U. S., 148 U. S. 301, 13 Sup. Ct.

695, 37 L. Ed. 469 ; Saltmarsh y. Crommelin, 24 Ala. 352.

“Color of title is anything in writing purport- ing to convey title to the land, which defines the extent of the claim, it being immaterial how de- fective or imperfect the writing may be, so that it is a sign, semblance, or color of title.” Veal v. Robinson, 70 Ga. 809.

Color of title ie that which the law con- siders prima facie a good title, but which, by reason of some defect, not appearing on its face, does not in fact amount to title. An absolute nullity, as a void deed, judgment, etc., will not constitute color of title. Bernal v. Gleim, 33 Cal. 608.

“Any instrument having a grantor and gran- tee, and containing a description of the lands in- tended to be conveyed, and apt words for their conveyance, gives color of title to the lands de- scribed. Such an instrument purports to be a conveyance of the title, and because it does not, for some reason, have that effect, it passes only color or the semblance of a title." Brooks v. Bruy a, 35 111. 392.

It is not synonymous with “claim of title. To the former, a paper title is requisite; but the

latter may exist wholly in parol. Hamilton v. Wright, 30 Iowa, 480.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: adverse-possession doctrine — possession under color of title extends by construction to the whole tract described in the defective instrument]**

The entry defines color of title but not its signature operative function: in adverse-possession law, possession under color of title extends constructively to the entire tract described in the instrument.

Why: Constructive possession under color of title is the doctrine that gives the entry's definition its legal consequence; the entry's own cases (Wright v. Mattison, Cameron v. U.S.) sit inside this doctrine. Stated as [La…

## COLORABLE.

That which has or gives color. That which Is In appearance only, and not In reality, what it purports to be.

—Colorable alteration. .One which makes no real or substantial change, but is introduced only as a subterfuge or means of evading the patent or copyright law.— Colorable imitation. In the law of trade-marks, this phrase denotes such a close or ingenious imitation as to be calculated to deceive ordinary persons.— Colorable pleading. The practice of giving color in pleading.

5e apparatus — Carried into the 5th edition (1979).

## COLORE  OFFICII.

Lat By color of office.

5e apparatus — Not carried into the 5th edition (1979).

## COLORED.

By common usage in Amer- ica, this term, in such phrases as “colored persons," "the colored race,” “colored men,” and the like, is used to designate negroes or persons of the African race, including all persons of mixed blood descended from negro ancestry. Van Camp v. Board of Education, 9 Ohio St 411; U. S. v. La Coste, 26 Fed. Cas. 829 ; Jones v. Com., 80 Vn. 542 ; Heim v. Bridault, 37 Miss. 222 ; State v. Chavers,

N. C. 15; Johnson v. Norwich, 29 Conn. 407.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

"And not the other color, so police think / They have the authority to kill a minority" — Ice Cube's verse names skin color outright as the trigger for the state's exercise of lethal authority, giving the dictionary's cold American usage of "colored" its lived content: the word as a sorting mechanism for who the law protects and who it polices.

Why: Added because the lyric explicitly invokes color as the basis on which legal authority is turned against a person, which is precisely what the entry documents — the American legal usage of "colored" as a racial design…

## COLPIGE8.

Young poles, which, being cut down, are made levers or lifters. Blount.

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5e apparatus — Not carried into the 5th edition (1979).

## COLPINDACH.

In old Scotch law. A young beast or cow, of the age of one or two years ; in later times called a “cowdash."

5e apparatus — Not carried into the 5th edition (1979).

## COLT.

An animal of the horse species, whether male or female, not more than four years old. Mallory v. Berry, 16 Kan. 295; Pullen v. State, 11 Tex. App. 91.

5e apparatus — Not carried into the 5th edition (1979).

## COM.

An abbreviation for “company,” exactly equivalent to “Co.” Keith v. Sturges,

51 111. 142.

5e apparatus — Carried into the 5th edition (1979).

## COMBARONES.

In old English law. Fellow-barons; fellow-citizens. The citizens

or freemen of the Cinque Ports being ancient- ly called "barons;" the term "combaronet" is used in this sense in a grant of Henry

III. to the barons of the port of Fevresham. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## COMBAT.

A forcible encounter between two or more persons ; a battle ; a duel. Trial by battle.

—Mutual combat is one into which both the parties enter voluntarily ; it implies a common Intent to fight, but not necessarily an exchange of blows. Aldrige v. State, 59 Miss. 250; Tate v. State, 46 Ga. 158.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[LL Cool J, 'Mama Said Knock You Out', 1990]**

"I'm gonna knock you out / Mama said knock you out" — the hook of a battle record (aimed at Kool Moe Dee): hip-hop's battle tradition is ritualized combat, the duel transposed to the mic, a modern trial by battle where the contest itself renders the verdict.

Why: Added because the entry's own definition includes "a battle; a duel. Trial by battle," and the MC battle is literally called a battle — verbal combat as a formal contest. The track is a documented diss/battle record,…

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Richard II, c. 1595]**

(paraphrase) Richard II stages the full ceremony of trial by battle between Mowbray and Bolingbroke before the king halts it — the wager of battle as legal procedure. (paraphrase)

Why: Entry defines combat to include trial by battle. The Richard II scene is the canonical dramatic staging of that legal institution; paraphrase marked.

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## COMBATERR2E.

A valley or piece of low ground between two hills. Kennett, Gloss.

5e apparatus — Not carried into the 5th edition (1979).

## COMBE.

A small or narrow valley.

5e apparatus — Carried into the 5th edition (1979).

## COMBINATION.

A conspiracy, or con- federation of men for unlawful or violent deeds.

A union of different elements. A patent may be taken out for a new combination of existing machines. Stevenson Co. v. McFas- sell, 90 Fed. 707, 33 C. C. A. 249; Moore v. Schaw (a G.) 118 Fed. 602.

— Combination la restraint of trade. A

trust, pool, or other association of two or more individuals or corporations having for its object to monopolize the manufacture or traffic in a particular commodity, to regulate or control the output, restrict the sale, establish and maintain the price, stifle or exclude compe- tition, or otherwise to interfere with the normal course of trade under conditions of free compe- tition. Northern Securities Co. v. U. S., 193

U. S. 197, 24 Sup. Ct. 436, 48 L. Ed. 679;

U. S. v. Knight Co., 156 U. S. 1. 15 Sup. CL 249, 39 L. Ed. 325; Texas Brewing Co. v. Templeman, 90 Tex. 277. 38 S. W. 27 ; U. S. v. Patterson (C. C.) 55 Fed. 605; State v. Con- tinental Tobacco Go., 177 Mo. 1, 75 S. W. 737.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Sherman Act § 1, 15 U.S.C. § 1 — contracts, combinations and conspiracies in restraint of trade]**

The entry's 'combination in restraint of trade' is the Sherman Act's operative phrase; the statute declares illegal every contract, combination, or conspiracy in restraint of interstate commerce, and the entry's cited cases (Northern Securities, Knight) construe it.

Why: The entry's headword sense is drawn verbatim from the statute's language; naming the statute anchors the cited case law to its source. Real statute, precise fit.

## COMBUSTIO.

Burning. In old English law. The punishment inflicted upon apos- tates.

— Gombustio domorum. Houseburning; ar- son. 4 Bl. Comm. 272. — Combnstio pecuniae. Burning of money ; the ancient method of test- ing mixed and corrupt money, paid into the ex- chequer, by melting it down.

5e apparatus — Not carried into the 5th edition (1979).

## COME.

To present oneself; to appear in court In modern practice, though such pres- ence may be

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constructive only, the word is still used to indicate participation in the proceedings. Thus, a pleading may begin, “Now comes the defendant,” etc. In case of a default, the technical language of the record is that the party “ comes not, but makes default” Horner v. O'Laughlin, 29 Md. 472.

COMES, v. A word used in a pleading to indicate the defendant’s presence in court See Come.

COMES, n. Lat A follower or attend- ant; a count or earL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

### COMMANDERY.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

### COMES AND DEFENDS.

This phrase, anciently used in the language of pleading, and still surviving in some Jurisdictions, oc- curs at the commencement of a defendant’s plea or demurrer ; and of its two verbs the former signifies that he appears in court, the latter that he defends the action.

5e apparatus — Carried into the 5th edition (1979).

## G

### GOMINTJ8.

Lat Immediately; hand-to- hand; in personal contact

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## C

### COMITAS.

Lat Comity, courtesy, civil- ity. Comitaa inter communitates ; or comf- taa inter genteaj comity between communi- ties or nations ; comity of nations. 2 Kent Comm. 457.

5e apparatus — Not carried into the 5th edition (1979).

### COMITATC OOMMISSO.

A writ or commission, whereby a sheriff is authorized to enter upon the charges of a county. Reg. Orig. 295.

5e apparatus — Not carried into the 5th edition (1979).

### COMITATE ET CASTRO OOMMISSO.

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A writ by which the charge of a county, to- gether with the keeping of a castle, is com- mitted to the sheriff.

5e apparatus — Not carried into the 5th edition (1979).

**COMITATUS.**

In old English law. A county or shire ; the body of a county. The ' territorial jurisdiction of a cornea, i. e., count or earl. The county court, a court of great antiquity and of great dignity in early times. Also, the retinue or train of a prince or high governmental official.

5e apparatus — Not carried into the 5th edition (1979).

**COMITES.**

Counts or earls. Attendants or followers. Persons composing the retinue of a high functionary. Persons who are Attached to the suite of a public minister.

5e apparatus — Not carried into the 5th edition (1979).

**COMITES PALEYS.**

Counts or earls palatine; those who had the government of a county palatine.

5e apparatus — Not carried into the 5th edition (1979).

**COMIT1A.**

In Roman law. An assembly, either (1) of the Roman curiae, in which case it was called the “comitia curiata vel calata;" or (2) of the Roman centuries, in which case it was called the "comitia centu- riataj" or (3) of the Roman tribes, In which case it was called the “ comitia tributa." Only patricians were members of the first comitia, and only pleblans of the last; but the comitia cen turiata comprised the entire populace, patricians and plebians both, and was the great legislative assembly passing the leges, properly so called, as the senate passed the aenotua conaulta, and the comitia tributa passed the plcblacita. Under the Lex Hortenaia, 287 B. C., the plebiacitum acquir- ed the force of a lex. Brown.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OOMITISSA.**

In old English law. A countess; an earl’s wife.

5e apparatus — Not carried into the 5th edition (1979).

# C

**COMITY.**

Courtesy; complaisance; re- spect; a willingness to grant a privilege, not as a matter of right, but out of deference and good will.

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—Comity of nations. The most appropriate phrase to express the true foundation and extent of the obligation of the laws of one nation with- in the territories of another. It is derived altogether from the voluntary consent of the lat- ter: and it is inadmisible when it is contrary to its known policy, or prejudicial to its inter- ests. In the silence of any positive rule affirming or denying or restraining the operation of foreign laws, courts of justice presume the tacit adoption of them by their own government, unless repugnant to its policy, or prejudicial to its interests. It is not the comity of the courts, but the comity of the nation, which is administered and ascertained in the same way, and guided by the same reasoning, by which ali other principles of the municipal law are as- certained and guided. Story, Confl. Laws, i 88. The comity of nations ( comitaa gentium) is that body of rules which states observe to- wards one another from courtesy or mutual con- venience, although they do not form part of international law. Holtz. Bine. a. v. Hilton v. Guyot, 159 U. S. 113. 16 Sup. Ct. 139, 40 L. Ed. 95; Fisher v. Fielding, 67 Conn. 91, 34 Atl. 714, 32 L. R. A. 236, 52 Am. St. Rep. 270; People v. Martin, 175 N. Y. 315, 67 N. fc 589, 96 Am. St Rep. 628. — Judicial eomity. The principle in accordance with which the courts of one state or jurisdiction will give effect to the laws and judicial decisions of another, not as a matter of obligation, but out of deference and respect Franzen v. Zimmer, 90 Hun, 103, 35 N. Y. Supp. 612; Stowe v. Bank (0. C.) 92 Fed. 96; Mast v. Mfg. Co.. 177 U. S. 485, 20 Sup. Ct 708, 44 L. Ed. 856; Conklin v. Shipbuilding Co. (C. C.) 123 Fed. 916.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Hilton v. Guyot, 159 U.S. 113 (1895)]**

The entry states the comity-of-nations doctrine at length from Story; the leading American case applying it — to the enforcement of foreign judgments — is Hilton v. Guyot.

Why: Hilton v. Guyot is the classic U.S. Supreme Court exposition of comity of nations (foreign-judgment recognition conditioned on reciprocity). It gives the entry's doctrinal statement its leading case application. Real...

## COMMAND.

An order, imperative direc- tion, or behest State 'v. Mann, 2 N. C. 4 ; Barney v. Hayes, 11 Mont 571, 29 Pac. 282, 28 Am. St Rep. 495.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:3, KJV]**

Thou shalt have no other gods before me.

Why: The Decalogue is the archetype of the authoritative imperative — a command in the full legal sense, binding direction from a superior. The verse illuminates what a 'command' is at its most absolute. (Deity's verbatim...

## COMMANDEMENT.

In French law. A writ served by the huissicr pursuant to a judgment or to an executory notarial deed. Its object is to give notice to the debtor that if he does not pay the sum to which he haa been condemned by the judgment, or which he engaged to pay by the notarial deed, his property will be seized and sold. Arg. Fr. Merc. Law, 550.

5e apparatus — Not carried into the 5th edition (1979).

## COMMANDER IN CHIEF.

By article 2, 8 2, of the constitution it is declared that the president shall be commander in chief of the army and navy of the United States. The term implies supreme control of military operations during the progress of a war, not only on the side of strategy and tactics, but also in reference to the political and inter- national aspects of the war. See Fleming v. Page, 9 How. 603, 13 L. Ed. 276; Prize Cases, 2 Black, 635, 17 L. Ed. 459; Swalm v. U. S., 28 Ct Cl. 173.

OOMmYA. In old English law. The dignity and office of a cornea, (count or earl ;) the same with what was afterwards called “ comitatua .”

Also a companion or fellow-traveler; a troop or company of robbers. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## COMMANDERY.

In old English law. A manor or chief messuage with lands and tenements thereto appertaining, which be- longed to the priory of St. John of Jerusalem, in England; he who had the government of such a manor or house was styled the “commander," who could not dispose of It, but to the use of the priory, only taking thence his own sustenance, according to his degree. The manors and lands belonging to the pri- ory of St John of Jerusalem were given to Henry the Eighth by 32 Hen. VIII. c. 20, about the time of the dissolution of abbeys and monasteries; so that the name only of commanderiee remains, the power being long since extinct Wharton.

5e apparatus — Carried into the 5th edition (1979).

## COMMANDIT AIRES.

Special partners; partners e» commandite. See Commandite.

5e apparatus — Not carried into the 5th edition (1979).

## COMMANDITE.

In French law. A spe- cial or limited partnership, where the con- tract is between one or more persons who are general partners, and jointly and severally responsible, and one or more other persons who merely furnish a particular fund or cap- ital stock, and thence are called "commandi- taires," or "commenditaires," or “partners on commandite;” the business being carried on under the social name or firm of the gen- eral partners only, composed of the names of the general or complementary partners, the partners In commandite being liable to losses only to the extent of the funds or capital fur- nished by them. Story, Partn. $ 78; 3 Kent, Comm. 34.

5e apparatus — Not carried into the 5th edition (1979).

## COMMANDMENT.

In practice. An

authoritative order of a judge or magisterial officer.

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In criminal law. The act or offense of one who commands another to transgress the law, or do anything contrary to law, as theft, murder, or the like. Particularly applied to the act of an accessary before the fact, in in- citing, procuring, setting on, or stirring up another to do the fact or act. 2 Inst. 182.

5e apparatus — Carried into the 5th edition (1979).

## COMMARCHXO.

A boundary; the con- fines of land.

5e apparatus — Not carried into the 5th edition (1979).

## COMMENCE.

To commence a suit is to demand something by the institution of pro- cess in a court of justice. Cohens v. Vir- ginia, 6 Wheat 408, 5 L. Ed. 257. To “bring” a suit is an equivalent term; an action is “commenced” when it is “brought” and vice versa. Goldenberg v. Murphy, 108 U. S. 162, 2 Sup. Ct 388, 27 I* Ed. 686.

5e apparatus — Carried into the 5th edition (1979).

## COMMEND A.

Xm French law. The de- livery of a benefice to one who cannot bold the legal title, to keep and manage it for a time limited and render an account of the proceeds. Guyot R6p. Unlv.

In mercantile law. An association in which the management of the property was Intrusted to individuals. Troub. Lira. Partn. c. 8, § 27.

Gommenda eat facnltas reclpiendi et retinendi benefieinm contra jas positiv- im 4 snpremfi potentate. Moore, 905. A

commendam is the power of receiving and retaining a benefice contrary to positive law, by supreme authority.

5e apparatus — Not carried into the 5th edition (1979).

## COMMENDAM.

In ecclesiastical law.

The appointment of a suitable clerk to hold a void or vacant benefice or church living until a regular pastor be appointed. Hob. 144; Latch, 236.

In commercial law. The limited part; nershlp (or Bociite en commandite) of the French law has been introduced into the Code of Louisiana under the title of “Part- nership in Commendam." Civil Code La. art 2810.

5e apparatus — Not carried into the 5th edition (1979).

## COMMENDATXO.

In the civil law. Commendation, praise, or recommendation, as in the maxim “simplex commends tlo non obllgah” meaning that mere recommendation or praise of an article by the seller of it does not amount to a warranty of its qualities. 2 Kent Comm. 485.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-313(2) — a seller's opinion or commendation does not create an express warranty]**

The entry's maxim 'simplex commendatio non obligat' — mere recommendation or praise by the seller does not amount to a warranty — is the Roman ancestor of the modern puffery rule: a seller's opinion or commendation does not create an express warranty.

Why: UCC § 2-313(2) codifies in American sales law the exact principle the entry's maxim states in Roman law — commendation versus warranty. The entry cites 2 Kent 485 for the maxim; the UCC provision is its living descend… [re-homed from 'COMMENDATIO' to 'COMMENDATXO' (OCR headword / parser-merge artifact)]

## COMMENDATION.

In feudal la W. ThlB was the act by which an owner of allodial land placed himself and his land under the protection of a lord, so as to constitute him- self his vassal or feudal tenant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COMMENDATORS.

Secular persons up- on whom ecclesiastical benefices were be- stowed in Scotland; called so because the benefices were commended and intrusted to their supervision.

5e apparatus — Not carried into the 5th edition (1979).

## COMMENDATORY.

He who holds a church living or preferment in commendam.

5e apparatus — Carried into the 5th edition (1979).

## COMMENDATORY LETTERS.

In ec- clesiastical law. Such as are written by one bishop to another on behalf of any of the clergy, or others of his diocese traveling thither, that they may be received among the faithful, or that the clerk may be promoted, or necessaries administered to others, etc. Wharton.

COMMEND ATTJS . In feudal law. One who Intrusts himself to the protection of another. Spelman. A person who, by vol- untary homage, put himself under the pro- tection of a superior lord. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 3:1, KJV]**

Do we begin again to commend ourselves? or need we, as some others, epistles of commendation to you, or letters of commendation from you?

Why: The verse names the exact instrument — letters of commendation — commending travelers to a receiving church: the same juridical-diplomatic function as the entry's bishop-to-bishop letters. (Paul's rhetoric, not deity…

## COMMERCE.

Intercourse by way of trade and traffic between different peoples or states and the citizens or inhabitants there- of, including not only the purchase, sale, and exchange of

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commodities, but also the in- strumentalities and agencies by which it is promoted and the means and appliances by which it is carried on, and the transporta- tion of persons as well as of goods, both by land and by sea. Brennan v. Titusville, 153

U. 8. 289, 14 Sup. Ct 829, 38 L. Ed. 719; Railroad Co. v. Fuller, 17 Wall. 568, 21 L. Ed. 710; Winder v. Caldwell, 14 How. 444, 14 L. Ed. 487 ; Cooley v. Board of Wardens.

How. 299, 13 L. EcL 996; Trade-Mark Cas- es, 100 U. S. 96, 25 L. Ed. 550; Gibbons t. Ogden, 9 Wheat. 1, 6 L. Ed. 23; Brown v. Maryland, 12 Wheat 448, 6 L. Ed. 678; Bow- man v. Railroad, 125 U. S. 465, 8 Sup. Ct 689, 31 L. Ed. 700; Lelsy v. Hardin, 135

U. S. 100, 10 Sup. Ct 681, 34 L. Ed. 128; Mobile County V. Kimball, 102 U. S. 691, 26

L. Ed. 238; Corfleld ▼. Coryell, 6 Fed. Gas. 546 ; Fuller v. Railroad Co., 31 Iowa, 207 ; Passenger Cases, 7 How. 401, 12 L. Ed. 702 ; Robbins v. Shelby County Taxing Diet., 120

U. S. 489, 7 Sup. Ct 592, 30 L. Ed. 694; Arnold v. Yanders, 56 Ohio St 417, 47 N.

E. 60, 60 Am. St Rep. 753; Fry v. State, 63 Ind. 562, 30 Am. Rep. 238; Webb v. Dunn, 18 Fla. 724; Gilman v. Philadelphia, 8 Wall. 724, 18 L. Ed. 96.

Commerce is a term of the largest import. It comprehends intercourse for the purposes of trade in any and all its forms, including the transportation, purchase, sale, and exchange of commodities between the citizens of our coun- try and the citizens or subjects of other coun- tries, and between the citizens of different states. The power to regulate it embraces all the instruments by which such commerce may be conducted. Welton v. Missouri, 91 U. S. 275. 23 L. Ed. 347.

Commerce is not limited to an exchange of commodities only, but includes, as well, inter- course with foreign nations and between the states; and includes the transportation of pas- sengers. Steamboat Co. v. Livingston, 3 Cow.

CN. Y.) 713; People v. Raymond, '34 Cal. 492.

The words “commerce” and “trade” are synonymous, but not identical. They are often used interchangeably ; but, strictly speaking, commerce relates to intercourse or dealings with foreign nations, states, or po- litical communities, while trade denotes busi- ness Intercourse or mutual traffic within the limits of a state or nation, or the buying, selling, and exchanging of articles between members of the same community. See Hook- er ▼. Vandewater, 4 Denlo (N. Y.) 353, 47 Am. Dec. 258; Jacob; Wharton.

— Commerce with foreign nations. Com- merce between citizens of the United States and citizens or subjects of foreign governments; commerce which, either immediately or at some stage of its progress, is extraterritorial. U. S. v. Holliday. 3 Wall. 409, 18 L. Ed. 182 ; Veazie ▼. Moor, 14 How. 573, 14 L. Ed. 545; Lord t. Steamship Co., 102 U. S. 544, 26 L. Ed. 224. The same as ‘•foreign commerce.” which see infra. — Commerce with Indian tribes. Commerce with individuals belonging to such tribes, in the nature of buying, selling, and ex- changing commodities, without reference to the locality where carried on, though it be within the limits of a state. U. S. v. Holliday, 3 Wall. 407, 18 L. Ed. 182; U. S. v. Cisna, 25 Fed. Gas. 424.— Domestic commerce. Com- merce carried on wholly within the limits of the

United States, as distinguished from for- eign commerce. Also, commerce carried on within the limits of a single state, as distin- guished from interstate commerce. Louisville 1 N. R. Co. v. Tennessee R. R. Com'n (C. C.) 19 Fed. 701.— Foreign commerce. Commerce or trade between the United States and foreign countries. Com. v. Housatonic R. Co., 143 Mass. 264, 9N.B. 647 ; Foster v. New Orleans, 94 U. S. 246. 24 L. Ed. 122. The term Is some- times applied to commerce between ports of two sister states not lying on the same coast, e. g„

New York and San Francisco.— Internal commerce. Such as is carried on between individuals within the same state, or between different parts of the same state. Lehigh Val.

R. Co. v. Pennsylvania, 146 U. S. 192, 12 Sup. Ct. 806, 36 L. Ed. 672; Steamboat Co. v. Liv- ingston, 3 Cow. (N. Y.) 713. Now more com- monly called "intrastate" commerce. — Inter- national commerce. Commerce between states or nations entirely foreign to each other. Louisville A N. R. Co. v. Tennessee R. R. Com'n (C. C.) 19 Fed. 701.— Interstate com- merce. Such as is carried on between different states of the Union or between pointB lying in different states. See Interstate Commerce.— Intrastate commerce. Such as is begun, carried on, and completed wholly within the limits of a single state. Contracted with "in- terstate commerce," ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 3 — Commerce Clause]**

The entry's long catalog of cases — Gibbons v. Ogden, Brown v. Maryland, Cooley v. Board of Wardens, the Passenger Cases — all construe a single constitutional grant: Congress's power to regulate commerce with foreign nations, among the states, and with the Indian tribes.

Why: The Commerce Clause is the anchor of the entire case catalog the entry assembles; naming it shows the student the single source all those decisions interpret. Real, verbatim-quoted grant.

## COMMERGIA BELLI.

War contracts. Compacts entered into by belligerent nations to secure a temporary and limited peace. 1 Kent, Comm. 159. Contracts between na- tions at war, or their subjects.

5e apparatus — Not carried into the 5th edition (1979).

## COMMERCIAL.

Relating to or connect- ed with trade and traffic or commerce in gen- eral. U. & v. Breed, 24 Fed. Cas. 1222; Earnshaw v. Cadwalader, 145 U. S. 258, 12 Sup. Ct 851, 36 L. Ed. 693; Zante Cur- rants (O. C.) 73 Fed. 189.

—Commercial agency. The same as a "mercantile" agency. In re United States Mer- cantile Reporting, etc., Co., 52 Hun, 611, 4 N.

Y. Supp. 916. See Mercantile.— Commer- cial agent. An officer in the consular serv- ice of the United States, of rank inferior to a consul. Also used as equivalent to "Commer- cial broker," see infra.-- Commercial broker. One who negotiates the sale of merchandise without having the possession or control of it, being distinguished in the latter particular from a commission merchant Adkins v. Richmond, 98 Va. 91. 34 S. EX 967, 47 L R. A. 583,

81 Am. St. Rep. 705 ; In re Wilson, 19 D. C. 349, 12 L. R. A. 624; Henderson v. Com., 78 Va. 489.— Commercial corporation. One engaged in commerce in the broadest sense of that term ; hence including a railroad com- pany. Sweatt v. Railroad Co., 23 Fed. Cas. 530. — Commercial domicile. See Domi- cile.—Commercial Insurance. See IN- SURANCE.—Commercial law. A phrase used to designate the whole body of substantive juris- prudence applicable to the rights, intercourse, and relations of persons engaged in commerce, trade, or mercantile pursuits. It is not a very scientific or accurate term. As foreign com- merce is carried on by means of shipping, the term has come to be used occasionally as syn- onymous with “maritime law ;” but, in strict- ness, the phrase “commercial law” is wider, and includes many transactions or legal questions which have nothing to do with shipping or its incidents. Watson v. Tarpley, 18 How. 521, 15

L. Ed. 509; Williams v. Gold Hill Min. Co. (C. C.) 96 Fed. 464.— Commercial mark. In French law. A trade-mark is specially or pure- ly the mark of the manufacturer or producer of the article, while a “commercial" mark is that of the dealer or merchant who distributes the product to consumers or the trade. La Republique Franqaise v. Schultz (C. C.) 57 Fea. 41.— Commercial paper. The term “commercial paper” meana bills of exchange, promissory notes, bank-checks, and other ne- gotiable instruments for the payment of money, which, by their form and on their face, purport to be such instruments as are, by the law- merchant, recognized as falling under the desig- nation of “commercial paper.” In re Hercules MuL L. Assur. Soc., 6 Ben. 35, 12 Fed. Cas.

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12. Commercial paper means negotiable paper given in due course of business, whether the element of negotiability be given it by the law- merchant or by statute. A note given by a merchant for money loaned Is within the mean- ing. In re Sykes, 5 Biss. 113, Fed. Cas. No. 13,706.— Commercial traveler. Where an agent simply exhibits samples of goods kept for sale by his principal, and takes orders from purchasers for such goods, which goods are afterwards to be delivered by the principal to the purchasers, and payment for the goods is to be made by the purchasers to the principal on such delivery, such agent is generally called a "drummer” or “commercial traveler.’r Kan- sas City v. Collins, 34 Kan. 434, 8 Pac. 865; Olney v. Todd, 47 111. App. 440 ; Bx parte Tay- lor. 58 Miss. 481, 38 Am. Kep. 336; State v. Miller. 93 N. G 511, 53 Am. Rep. 469.

5e apparatus — Not carried into the 5th edition (1979).

## COMMERCIUM.

Lat In the civil law. Commerce ; business ; trade ; dealings in the nature of purchase and sale ; a contract.

Commercials jure gentium commune esse debet, et non In monopolium et pri- vatum paueornm qusestum oonverten- dum. 3 Inst. 181. Commerce, by the law of nations, ought to be common, and not con- verted to monopoly and the private gain of a few.

5e apparatus — Not carried into the 5th edition (1979).

## COMM1N ALTY.

The commonalty or the people.

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## COMMINATORIUM.

In old practice. A clause sometimes added at the end of writs, admonishing the sheriff to be faithful In executing them. Bract fol. 398.

5e apparatus — Not carried into the 5th edition (1979).

## COMMISE.

In old French law. Forfei- ture; the forfeiture of a fief ; the penalty at- tached to the Ingratitude of a vassal. Guyot, Inst Feod. c. 12.

5e apparatus — Not carried into the 5th edition (1979).

## COMMISSAIRE.

In French law. A person who receives from a meeting of share- holders a special authority, viz., that of checking and examining the accounts of a manager or of valuing the apporta en nat- ure, ( q . v.) The name is also applied to a judge who receives from a court a special mission, e. g., to Institute an Inquiry, or to examine certain books, or to supervise the operations of a bankruptcy. Arg. Fr. Merc. Law, 551.

COMMISS AHtE8 -PRISEDS8. In

French law. Auctioneers, who possess the exclusive right of selling personal property at public sale In the towns In which they are established ; and they possess the same right concurrently with notaries, grefllrra. and huiaaicra, in the rest of the arrondissement. Arg. Fr. Merc. Law, 551.

5e apparatus — Not carried into the 5th edition (1979).

## COMMISSARIAT.

The whole body of officers who make up the commissaries' de- partment of an army.

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## COMMISSARY.

In ecclesiastical law.

One who Is sent or delegated to execute some

office or duty as the representative of his su- perior; an officer of the bishop, who exer- cises spiritual jurisdiction in distant parts of the diocese.

In military law. An officer whose prin- cipal duties are to supply an army with pro- visions and Btores.

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## COMMISSARY COURT.

A Scotch ec- clesiastical court of general jurisdiction, held before four commissioners,

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members of the Faculty of Advocates, appointed by the crown.

5e apparatus — Not carried into the 5th edition (1979).

## COMMISSION.

A warrant or authority or letters patent, issuing from the govern- ment, or one of its departments, or a court, empowering a person or persons named to do certain acts, or to exercise jurisdiction, or to perform the duties and exercise the authori- ty of an office, (as In the case of an officer In the army or navy.) Bledsoe v. Colgan, 188 Cab 34, 70 Pac. 924; U. S. v. Planter, 27 Fed. Cas. 544; Dew v. Judges, 8 Hen. & M. (Va.) 1, 8 Am. Dec. 639; Scofield v. Louns- bury, 8 Conn. 109.

Also, In private affairs. It signifies the au- thority or Instructions under which one per- son transacts business or negotiates for an- other.

In a derivative sense, a body of persons to whom a commission is directed. A board or committee officially appointed and empower- ed to perform certain acts or exercise cer- tain jurisdiction of a public nature or rela- tion; as a "commission of assise.”

Ia the civil law. A species of bailment being an undertaking, without reward, to do something In respect to an article bailed; equivalent to "mandate.”

Ia commercial law. The recompense or reward of an agent factor, broker, or bailee, when the same is calculated as a per- centage on the amount of his transactions or on the profit to the principal. But In this sense the word occurs more frequently In the plural. Jackson v. Stanfield, 137 Ind. 592, 37 N. E. 14. 23 L. R. A. 588: Ralston v. Kohl, 30 Ohio St. 98; Whitaker v. Guano Co., 123 N. C. 368, 31 S. E. 029.

Ia criminal law. Doing or perpetration ; the performance of an act. Groves v. State, 116 Ga. 516, 42 S. E. 755, 59 L. R. A. 598.

Ia practice. An authority or writ Issu- ing from a court. In relation to a cause be- fore it, directing and authorizing a person or persons named to do some act or exercise some special function; usually to take the depositions of witnesses.

A commission is a process issued under the seal of the court and the signature of the clerk, directed to some person designated as commie-' sioner, authorizing him to examine the witness upon oath on interrogatories annexed thereto, to take and certify the deposition of the wit- ness, and to return it according to the directions

riven with the commission. Pen. Code Cal. | 1361.

— Commission day. In English practice. The opening day of the assises.— Commission de Innatioo inquirendo. The same as a commission of lunacy, (see infra.) In re Mis- selwitz, 177 Pa. 359, 35 Atl. 722.— Commis- sion del credere, in commercial law, is where an agent of a seller undertakes to guaranty to his principal the payment of the debt due hy the buyer. The phrase “ del credere" is bor- rowed from the Italian language, in which its signification is equivalent to our word ‘“guar- anty” or "warranty." Story, Ag. 28.— Oom- aaissioa merchant. A term which is synony- mous with “factor.” It means one who re- ceives goods, chattels, or merchandise for sale, exchange, or other disposition, and who is to receive a

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compensation for his services, to be paid by the owner, or derived from the sale, etc., of the goods. State v. Thompson, 120 Mo. 12, 26 S. W. 346; Perkins v. State, 60 Ala. 164; White v. Com.. 78 Va. 484.— Commis- sion of anticipation. In English law. An authority under the great seal to collect a tax or subsidy before the day.— Commission of appraisement and sale. Where property has been arrested in an admiralty action in rem and ordered by the court to be sold, the order is carried out by a commission of ap- praisement and sale; in some cases (as where the property is to be released on bail and the value is disputed) a commission of appraisement only is required. Sweet.— Commission of ar- ray. In English law. A commission issued to send into every county officers to muster or set in military order the Inhabitants. The intro- duction of commissions of lieutenancy, which contained, in substance, the same powers as these commissions, superseded them. 2 Steph. Comm. (7th EM.) 582.— Commission of as- sise. Th oee issued to judges of the high court or court of appeal, authorizing them to sit at the assises for the trial of civil actions.— Com- mission of bankrupt. A commission or au- thority formerly granted by the lord chancellor to such persons as he should think proper, to examine the bankrupt in all matters relating to his trade and effects, and to perform various other important duties connected with bank- ruptcy matters. But now, under St. 1 & 2 Wm.

IV. c. 56, | 12, a fiat issues instead of such commission. — Commission of charitable macs. This commission issues out of chancery to the bishop and others, where lands given to charitable uses are misemployed, or there is any fraud or dispute concerning them, to inquire of and redress the same, etc. — Commission of delegates. When any sentence was given in any ecclesiastical cause by the archbishop, this commission, under the great seal, was directed to certain persons, usually lords, bishops, and judges of the law, to sit and hear an appeal of the same to the king, in the court of chan- cery. But latterly the judicial committee of the privy council has supplied the place of this com- mission. Brown.— Commission of Innaoy.

A writ Issued out of chancery, or such court as may have jurisdiction of the case, directed to a proper officer, to inquire whether a person nam- ed therein is a lunatic or not. 1 Bouv. Inst. n. 382, et teg. ; In re Moore, 68 Cal. 281, 9 Pac. 164.— Commission of partition. In the for- mer English equity practice, this was a commis- sion or authority issued to certain persons, to effect a division of lands held by tenants in common desiring a partition ; when the com- missioners reported, the parties were ordered to execute mutual conveyances to confirm the divi- sion.—Commission of rebellion. In Eng- lish law. An attaching process, formerly issu- able out of chancery, to enforce obedience to a process or decree : abolished by order of 26th August, 1841.— Commission of review. In English ecclesiastical law. A commission for- merly sometimes granted in extraordinary cases, to revise the sentence of the court of dele- gates. 3 Bl. Comm. 67. Now out of use, the privy council being substituted for the court of delegates, as the great court of appeal in all ecclesiastical causes. 3 Steph. Comm. 432.— Commission of the peace. In English law. A commission from the crown, appointing cer- tain persons therein named, jointly and several- ly, to keep the peace, etc. Justices of the peace are always appointed by special commission un- der the great seal,

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the form of which was set- tled by all the judges, A. D. 1590, and continues with little alteration to this day. 1 Bl. Comm. 351 ; 3 Steph. Comm. 39, 40.— Commission of treaty with foreign princes. Leagues and arrangements made between states and king- doms, by their ambassadors and ministers, for the mutual advantage of the kingdoms in al- liance. Wharton.— Commission of nnlivery. In an action in the English admiralty division, where it is necessary to have the cargo in a ship unladen in order to have it appraised, a commission of unlivery is issued and executed by the marshal. Williams & B. Adm. Jur. 233. —Commission to examine witnesses. In practice. A commission issued out of the court in which an action is pending, to direct the tak- ing of the depositions of witnesses who are be- yond the territorial jurisdiction of the court. —Commission to take answer in chan- cery. In English law. A commission issued when defendant lives abroad to swear him to such answer. 15 & 16 Viet. c. 86, S 21. Obso- lete. See Jud. Acts, 1873, 1875.— Commission to take depositions. A written authority is- sued by a court of justice, giving power to take the testimony of witnesses who cannot be per- sonally produced in court Tracy v. Suydam, 80 Barb. (N. Y.) 110.

5e apparatus — Carried into the 5th edition (1979).

## COMMISSIONED OFFICERS.

In the

United States army and navy and marine corps, those who hold their rank and office under commissions Issued by the president, as distinguished from non-commissioned of- ficers (in the army, including sergeants, cor- porals, etc.) and warrant officers (in the na- vy, Including boatswains, gunners, etc.) and from privates or enlisted men. See Babbitt v. U. S., 16 Ct a. 202.

5e apparatus — Not carried into the 5th edition (1979).

## COMMISSIONER.

A person to whom a commission is directed by the government or a court State v. Banking Co., 14 N. J. Law, 437; In re Canter, 40 Misc. Rep. 126, 81 N.

Y. Supp. 338.

In tiie governmental system of the United States, this term denotes an officer who is charged with the administration of the laws relating to some particular subject-matter, or the management ?f some bureau or agency of the government. Such are the commis- sioners of education, of patents, of pensions, of fisheries, of the general land-office, of Indian affairs, etc.

In the state governmental systems, also, and in England, the term is quite extensively used as a designation of various officers hav- ing a similar authority and similar duties.

— Commissioner of patents. An officer of the United States government, being at the head of the bureau of the patent-office.— Commis- sioners of ball. Officers appointed to take recognizances of bail in civil canes. — Commis- sioners of bankrupts. The name given, un- der the former English practice in bankruptcy, to the persons appointed nnder the great

seal to

execute a commission of bankruptcy, (a. t\) — Commissioners of circuit courts. Officers appointed by and attached to the circuit courts of the United States, performing functions part- ly ministerial and partly judicial. To a cer- tain extent they represent the judge in his ab- sense. In the examination of persons arrested for violations of the laws of the United States they have the powers of committing magistrates. They also take hail, recognizances, affidavits, etc., and hear preliminary proceedings for for- eign extradition. In re Com'rs of Circuit Court (C. C.) 65 Fed. 317. — Commissioners of deeds. Officers empowered by the government of one state to reside in another state, and there take acknowledgments of deeds and other papers which are to be used as evidence or put on record in the former state.— Commission- ers of highways. Officers appointed in each county or township, in many of the states, with power to take charge of the altering, opening, repair, and vacating of highways within such county or township.— Commissioners of sew- ers. In English law. Commissioners appoint- ed under the great seal, and constituting a court of special jurisdiction ; which is to overlook the repairs of the banks and walls of the sea- coast and navigable rivers, or, with consent of a certain proportion of the owners and occupiers, to make new ones, and to cleanse such rivers, and the streams communicating therewith. St. 3*4 Wm. IV. c. 22. § 10; 3 Steph. Comm. 442.— County commissioners. See County.

5e apparatus — Carried into the 5th edition (1979).

### COMMISSIONS.

The compensation or reward paid to a factor, broker, agent, bailee, executor, trustee, receiver, etc., when the same is calculated as a percentage on the amount of his transactions or the amount re- ceived or expended. See Commission.

5e apparatus — Carried into the 5th edition (1979).

### COMMISSIVE.

Caused by or consisting In acts of commission, as distinguished from neglect, sufferance, or toleration: as in the phrase "commissive waste,” which is con- trasted with “permissive waste.” See Waste.

5e apparatus — Not carried into the 5th edition (1979).

## G

### GOMMISSORIA LEX.

In Roman law. A clause which might be Inserted in an agreement for a sale upon credit, to the ef- fect thnt the vendor should he freed from his obligation, and might rescind the sale, if the vendee did not pay the purchase price at the appointed time. Also a similar agreement between a debtor and his pledgee that, if the debtor did not pay at the day appointed, the pledge should become the absolute property of the creditor. This, however, was abol- ished by a law of Constantine. Cod. 8, 35, 3. See Dig. 18, 3; Mackeld. Rom. Law, If

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447, 401; 2 Kent, Comm. 583.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COMMIT.

In practice. To send a per- son to prison by virtue of a lawful authori- ty, for any crime or contempt, or to an asy- lum, workhouse, reformatory, or the like, by authority of a court or magistrate. People v. Beach, 122 Cal. 37, 54 Pac. 369 ; Cummington v. Wareham, 9 Cusb. (Mass.) 585; French v. Bancroft, 1 Mete. (Mass.) 502; People v. Warden, 73 App. Div. 174, 76 N. Y. Supp. 728.

To deliver a defendant to the custody of the sheriff or marshal, on his surrender by his bail. 1 Tidd, Pr. 285, 287.

5e apparatus — Carried into the 5th edition (1979).

## COMMITMENT.

In practice. The war- rant or mittimus by which a court or magis- trate directs an officer to take a person to prison.

The act of sending a person to prison by means of such a warrant or order. People v. Rutan, 3 Mich. 49; Guthmann v. People, 203 111. 200, 67 N. E. 821 ; Allen v. Hagan, 170 N. Y. 46, 62 N. EX 1086.

5e apparatus — Carried into the 5th edition (1979).

## COMMITTEE.

In practice. An assem- bly or board of persons to whom the consid- eration or management of any matter is com- mitted or referred by some court. Lloyd v. Hart, 2 Pa. 473, 45 Am. Dec. 612 ; Farrar v. Eastman, 5 Me. 345.

An individual or body to whom others have delegated or committed a particular du- ty, or who have taken on themselves to per- form it In the expectation of their act being confirmed by the body they profess to repre- sent or act for. 15 Mees. & W. 529.

The term is especially applied to the per- son or persons who are Invested, by order of the proper court, with the guardianship of the person and estate of one who has been adjudged a lunatic.

In parliamentary law. A portion of a legislative body, comprising one or more members, who are charged with the duty of examining some matter specially referred to them by the house, or of deliberating upon it and reporting to the house the result of their investigations or recommending a course of action. A committee may be appointed for one special occasion, or it may be appointed to deal with all matters which may be refer- red to it during a whole session or during the life of the body. In the latter case, it is called a “standing committee.” It is usu- ally composed of a comparatively small num- ber of

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members, but may include the whole house.

—Joint committee. A joint committee of a legislative body comprising two chambers is a committee consisting of representatives of each of the two houses, meeting and acting together as. one committee.— Secret committee. A se- cret committee of the house of commons is a committee specially appointed to investigate a certain matter, and to which secrecy being deemed necessary in furtherance of its objects, its proceedings are conducted with closed doors, to the exclusion of all persons not members of the committee. All other committees are open to members of the house, although they may not be serving upon them. Brown.

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## COMMITTING MAGISTRATE.

See

Maqistbate.

5e apparatus — Carried into the 5th edition (1979).

## COMMITTITUR.

In practice. An or- der or minute, setting forth that the person named in it is committed to the custody of the sheriff.

— Gommittitnr piece. An instrument in writ- ing on paper or parchment, which charges a person, already in prison, in execution at the suit of the person who arrested him. 2 Chit, Archb. Pr. (12th Ed.) 1208.

COMMIXTlO

5e apparatus — Not carried into the 5th edition (1979).

## COMUXTIO.

In the civil law. The mixing together or confusion of things, dry or solid, belonging to different owners, as dis- tinguished from confusto, which has relation to liquids.

5e apparatus — Not carried into the 5th edition (1979).

## COMMODATE.

In Scotch law. A gra- tuitous loan for use. Ersk. Inst. 3, 1, 20. Closely formed from the Lat. commodatum, («r- v.)

5e apparatus — Carried into the 5th edition (1979).

## COMMODATI ACTIO.

Lat. In the civil law. An action of loan; an action for a thing lent. An action given for the recov- ery of a thing loaned, ( commodatum ,) and not returned to the lender, Inst 3, 15, 2; Id. 4, 1, 16.

5e apparatus — Not carried into the 5th edition (1979).

## COMMODATO.

In Spanish law. A con- tract by which one person lends gratuitous- ly to another some object

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not consumable, to be restored to him in kind at a given pe- riod; the same contract as commodatum, {q. v.)

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## COMMODATUM.

In the Civil law. He who lends to another a thing for a definite time, to be enjoyed and used under certain conditions, without any pay or reward, is called “commodans the person who re- ceives the thing Is called "cornmodatarius" and the contract is called "commodatum." It differs from locatio and conductio, in this: that the. use of the thing is gratuitous. Dig. 13, 6; Inst. 3, 2, 14; Story, Bailm. $ 221. Coggs v. Bernard, 2 14. Raym. 9G9; Adams v. Mortgage Co., 82 Miss. 263, 34 South. 482, 17 L. R. A. (N. S.) 138, 100 Am. SL Rep. 633; World’s Columbian Exposition Co. v. Repub- ■ lie of France, 96 Fed. 693, 38 C. C. A. 483.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 6:35, KJV]**

and lend, hoping for nothing again.

Why: The entry's essence is gratuitousness — use of the thing 'without any pay or reward.' The verse commends exactly that: lending with no hope of return. It illuminates the moral-legal shape of the gratuitous loan. (Jesu...

## COMMODITIES.

Goods, wares, and merchandise of any kind; movables; arti- cles of trade or commerce. Best v. Bauder, 29 How. Prac. (N. Y.) 492; Portland Bank v. Aptborp, 12 Mass. 256; Queen Ins. Co. v. State, 86 Tex. 250, 24 S. W. 397, 22 L. R. A. 483.

Commodnm ez injnrlA ml nemo ha- bere debet. Jenk. Cent. 161. No person ought to have advantage from his own wrong.

COMMOK, n. An incorporeal heredita- ment which consists in a profit which one man has in connection with one or more others in the land of another. Trustees v. Robinson, 12 Serg. & R. <Pa.) §1; Van Rens- selaer v. Radcliff, 10 Wend. (N. Y.) 647, 25 Am. Dec. 582; Watts v. Coffin, 11 Johns. (N. Y.) 498.

Common, in English law, is an incorporeal right which lies in grant, originally com- mencing on some agreement between lords and tenants, which by time has been formed into prescription, and continues good, • al Bl.Law Dict.(2d Ed.)— 15

though there be no deed or instrument to prove the original contract. 4 Coke, 37; 1 Crabb, Real Prop. p. 258, § 268.

Common, or a right of common, is a right or privilege which several persons have to the pro- duce of the lands or waters of another. Thus common of pasture is a right of feeding the beasts of one person on the lands of- another; common of estovers is the right a tenant has of taking necessary wood and timber from the woods of the lord for fuel, fencing, etc. Van Rensselaer v. Radcliff, 10 Wend. (N. Y.) 647.

The word “common” also denotes an unin- closed piece of land set apart for public or municipal purposes, in many cities and vil- lages of the United States. White v. Smith, 37

Mich. 291 ; Newport v. Taylor, 16 B. Mon. 807; Cincinnati v. White, 6 Pet 435, 8 L. Ed. 452; Cummings v. St. Louis, 90 Mo. 259, 2 S. W. 130; Newell v. Hancock, 67 N. H. 244, 35 Atl. 253; Bath v. Boyd, 23 N. C. 194; State v. McReynolds, 61 Mo. 210.

—Common appendant. A right annexed to the possession of arable land, by which the owner is entitled to feed his beasts on the lands of another, usually of the owner of the manor of which the lands entitled to common are a part. 2 Bl. Comm. 33 ; Smith v. Floyd, 18 Bari). (N. Y.) 527 ; Van Rensselaer v. Radcliff, 10 Wend. (N. Y.) 648.— Common appurtenant. A right of feeding one’s beasts on the land of an- other, (in common with the owner or with others,) which is founded on a grant, or a pre- scription which supposes a grant. 1 Crabb, Real Prop. p. 264, § 277. This kind of common arises from no connection of tenure, and is against common right; it may commence by grant within time of memory, or, in otic • words, may be created at the present day ; it may be claimed as annexed to any kind of land, and may be claimed for beasts not commonable, as well as those that are. 2 Bl. Comm. 33; Van Rensselaer v. Radcliff, 10 Wend. (N. Y.) 649; Smith v. Floyd, 18 Barb. (N. Y.) 527. — Common beoause of vicinage is where the inhabitants of two townships which lie contigu- ous to each other have usually intercommoned with one another, the beasts of the one stray- ing mutually into the other’s fields, without any molestation from either. This is, indeed, only a permissive right, intended to excuse what, in' strictness, is a trespass in both, and to prevent a multiplicity of suits, and therefore either township may inclose and bar out the other, though they have intercommoned time out of mind. 2 Bl. Comm. 33 ; Co. Litt. 122a.— Com- mon in gross, or at large. A species of common which is, neither appendant nor appur- tenant to land, but is annexed to a man's per- son. being granted to him and his heirs by deed ; or it may be claimed by prescriptive right, as by a parson of a church or the like corpora- tion sole. 2 Bl. Comm. 34. It is a separate in- heritance, entirely distinct from any other land- ed property, vested in the person to whom the common right belongs. 2 Steph. Comm. 6; Mitchell v. D’Olier, 68 N. J. Law, 375, 53 Atl. 467, 59 L. R. A. 949.— Common of digging. Common of digging, or common in the soil, is the right to take for one’s own use part of the soil or minerals in another’s land ; the most usual subjects of the right are sand, gravel, stones, and clay. It is of a very similar nature to common of estovers and of turbary. Elton, Cora. 109.— Common of estovers. A liberty of taking necessary wood for the use or furni- ture of a house or farm from off another’s es- tate, in common with the owner or with others. 2 Bl. Comm. 35. It may be claimed, like com- mon of pasture, either by grant or prescription.

2 Steph. Comm. 10; Van Rensselaer v. Radcliff, 10 Wend. (N. T.) 648. — Common of fish- ery. The same as Common of piscary. See In- fra.— Common of fowling. In some parts of the country a right of taking tyild animals (such as conies or wildfowl) from the land of another has been found to exist; in the case of wildfowl, it is called a "common of fowling.” Elton, Com. 118.— Common of pasture. The right or liberty of pasturing one’s cattle upon another man’s land. It may be either append- ant, appurtenant, in gross, or because of vicin- age. Van Rensselaer v. Radcliff, 10 Wend. (N. Y.) 647.— Common of piscary. The right or liberty of fishing in another man’s water, in common with the owner or with other

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persons. 2 Bl. Comm. 34. A liberty or right of fishing in the water covering the soil of another per- son, or in a river running through another's land. 3 Kent, Comm. 409. Hardin v. Jordan, 140 U. 8. 371, 11 Sup. Ct. 808, 35 L. Ed. 428: Albright v. Park Com’n, 68 N. J. Law, 523, 53 Atl. 612 ; Van Rensselaer v. Radcliff, 10 Wend. (N. Y.) 649. It is quite different from a com- mon fishery, with which, however, it is fre- quently confounded.— Common of shack. A species of common by vicinage prevailing in the counties of Norfolk, Lincoln, and Yorkshire, in England ; being the right of persons occupying lands lying together in the same common field to turn out their cattle after harvest to feed

romiscuously in that field. 2 Steph. Comm. 6,

; 0 Coke, 65. — Common of turbary. Com- mon of turbary, in its modern sense, is the right of taking peat or turf from the waste land of another, for fuel in the commoner’s house. Wil- liams, Common, 187 ; Van Rensselaer v. Rad- cliff, 10 Wend. OH. Y.) 647.— Common sans nombre. Common without number, that is, without limit as- to the number of cattle which may be turned on ; otherwise called “common without stint.” Bract, fols. 53b, 222b; 2

Steph. Comm. 6, 7 ; 2 BI. Comm. 34.— Com- mon, tenants In. See Tenants in Common.

5e apparatus — Not carried into the 5th edition (1979).

## COMMON.

As an adjective, this word denotes usual, ordinary, accustomed; shared amongst several; owned by several jointly. State v.. O’Conner, 49 Me. 596; Koen v. State, 35 Neb. 676, 63 N. W. 695, 17 L. R.

A. 821 ; Aymette v. State, 2 Humph. (Tenn.) 154.

— Common assurances. The several modes or instruments of conveyance established or authorized by the law of England. Called "com- mon” because thereby every man’e estate Is as- sured to him. 2 Bl. Comm. 294. The legal evidences of the translation of property, where- by every person’s estate is assured to him, and all controversies, doubts, and difficulties are either prevented or removed. Wharton.— Com- mon fine. In old English • law. A certain sum of money which the residents in a leet paid to the lord of the leet, otherwise called “head silver,” “cert money,” Ig. v.,) or "certum let as.” Termes de la Ley; Cowell. A sum of money paid by the inhabitants of a manor to their lord, towards the charge of holding a court leet. Bailey, Diet.— Common form. A will is said to be proved in common form when the executor proves it on his own oath; as distin- guished from “proof by witnesses.” which is necessary when the paper propounded as a will is disputed. Hubbard v. Hubbard, 7 Or. 42; Richardson v. Green. 61 Fed. 423, 9 C. C. A. 565: In re Straub, 49 N. J. Eq. 264, 24 Atl. 509; Sutton v. Hancock, 118 Ga. 436. 45 S. E. 504.— Common hall. A court in the city of London, at which all the citizens, or such as are free of the city, have a right to attend.— Common learning. Familiar law or doc- trine. Dyer, 27b. 33. — Common place. Com- mon pleas. The English court of common pleas is sometimes so called in the old books.— Com- mon prayer. The liturgy, or public form of

£rayer prescribed by the Church of England to e used in all churches and chapels, and

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which the clergy are enjoined to use under a certain penalty.— Common repute. The prevailing belief In a given community as to the existence of a certain fact or aggregation of facts. Brown v. Foster, 41 S. C. 118, 19 S. E. 299. -Common right. A term applied to rights, privileges, and immunities appertaining to and enjoyed 4by all citizens equally and in common, and which have their foundation in the com- mon law. Co. Inst. 142o; Spring Valley Wa- terworks v. Schottler, 62 Cab 106.— Common seller. A common seller of any commodity (particularly under the liquor laws of many states) is one who sells it frequently, usually, customarily, or habitually; in Borne states, ose who is shown to have made a certain number of sales, either three or five. State v. O'Con- ner, 49 Me. 596; State v. Nutt, 28 Vt. 598; Moundsviile v. Fountain, 27 W. Va. 194; Com. v. Tubbs, 1 Cush. (Mass.) 2.— Common sense. Sound practical judgment; that de- gree of intelligence and reason, as exercised up- on the relations of persons and things and the ordinary affairs of life, which is possessed by the generality of mankind, and which would suffice to direct the conduct and actions of the individual in a manner to agree with the be- havior of ordinary persons.— Common thief. One who by practice and habit is a thief; or, in some states, one who has been convicted of three distinct larcenies at the same term of court World v. State, 50 Md. 54; Com. v. Hope, 22 Pick. (Mass.) 1 ; Stevens v. Com;, 4 Mete. (Mass.) 364. — Common weal. The public or common good or welfare.

As to common "Bail," ''Barretor,'' "Car- rier," "Chase," "Council," "Counts, " "Dili- gence," "Day," "Debtor," "Drunkard," "Er- ror," "Fishery," "Highway," "Informer," "Inn," "Intendment," "Intent," "Jury," "La- bor," "Nuisance," "Property," "School," "Scold," "Stock," "Seal," "Sergeant," "Tra- verse," "Vouchee," "Wall," see those titles. For Commons, House of, see House or Com- mons.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 2:44, KJV]**

And all that believed were together, and had all things common.

Why: The legal concept of holding in common — goods owned jointly — stated of the first church. Direct bearing on 'shared amongst several; owned by several jointly.' (Narrative: no flag.)

## COMMON BAR.

In pleading. (Other- wise called "blank bar.") A plea to compel the plaintiff to assign the particular place where the trespass has been committed. Steph. PI. 256.

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## COMMON BENCH.

The English court of common pleas was formerly so called. Its original title appears to have been simply "The Bench," but it was designated "Com- mon Bench" to distinguish it from the "King's Bench," and because in it were tried and determined the causes of common per- sons, i. e., causes between subject and sub- ject, in which the crown bad no Interest.

COMMON LAW. 1. As distinguished from the Roman law, the modern civil law, the canon law, and other systems, the com- mon law is that body of law and juristic theory which was

originated, developed, and formulated and is administered in England, and has obtained among most of the states and peoples of Anglo-Saxon stock. Lux v. Haggin, 69 Cal. 255, 10 Pac. 674.

2. As distinguished from law created by the enactment of legislatures, the commou

law comprises the body of those principles and rules of action, relating to the govern- ment and security of persons and property, which derive their authority solely from usages and customs of immemorial antiquity, or from the Judgments and decrees of the courts recognizing, affirming, and enforcing such usages and customs; and, in this sense, particularly the ancient unwritten law of England. Western Union Tel. Co. v. Call Pub. CO., 181 U. 8. 92, 21 Sup. Ct 561, 45

L. Ed. 765; State v. Buehannn, 5 Har. & J. (Md.) 365, 9 Am. Dec. 534; Lux v. Haggin, 69 Cal. 255, 10 Pac. 674 ; Barry v. Port Jer- vis, 64 App. Dlv. 268, 72 N. Y. Supp. 104.

3. As distinguished from equity taw, it is a body of rules and principles, written or un- written, which are of fixed and immutable authority, and which must be applied to con- troversies rigorously and in their entirety, and cannot be modified to suit the peculiari- ties of a specific case, or colored by any Judi- cial discretion, and which rests confessedly upon custom or statute, as distinguished from any claim to ethical superiority. Kle- ver v. Seawall, 65 Fed. 395, 12 C. C. A. 661.

4. As distinguished from ecclesiastical law, it is the system of Jurisprudence adminis- tered by the purely secular tribunals.

5. As concerns its force and authority in the United States, the phrase designates that portion of the common law of England (in- cluding such acts of parliament as were ap- plicable) which had been adopted and was in force here at the time of the Revolution. This, so far as it has not since been expressly abrogated, is recognized as an organic part of the Jurisprudence of most of the United States. Browning v. Browning, 3 N. M. 371, 9 Pac. 677 ; Guardians of Poor v. Greene, 5 Bin. (Pa.) 557; U. S. v. New Bedford Bridge, 27 Fed. Cas. 107.

6. In a wider sense than any of the fore- going, the “common law” may designate all that part of the positive law, Juristic theory, and ancient custom of any state or nation which is of general and universal applica- tion, thus marking off special or local rules or customs.

As a compound adjective “common-law” is understood as contrasted with or opposed to “statutory,” and sometimes also to “equi- table” or to “criminal.” See examples below.

— Common-law action. A civil suit, as dis- tinguished from a criminal prosecution or a

Eroceeding to enforce a penalty or a police regu- ition ; not necessarily an action which would Be at common law. Kirby v. Railroad Co. (C. C.) 106 Fed. 551; U. 8. v. Block, 24 Fed. Cas. 1,174. — Common-law assignments. Such forms of assignments for the benefit Of creditors as were known to the common law, as distin- guished from such as are of modem invention or authorized by statdte. Ontario Bank • v. Hurst, 103 Fed. 231, 43 C. C. A. 193.— Com- nsom-law cheat. The obtaining of money or property by means of a false token, symbol, or device ; this being the definition of a cheat or “cheating” at common law. State

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v. Wilson. 72 Minn. 622, 75 N. W. 715 ; State v. Renick;

Or. 584, 56 Pac. 275, 44 L, R. A. 206, 72 Am. St. Rep. 758. — Common-law courts. In England, those administering the common law. Equitable L. Assur. Soc. v. Paterson, 41 Ga. 364, 5 Am. Rep. 535.— Common-law crime. One punishable by the force of the common law, as distinguished from crimes created by statute. In re Greene (C. C.) 52 Fed. 104.— Common-law jurisdiction. Jurisdiction of a court to try and decide such cases as were cognizable by the courts of law under the Eng- lish common law; the jurisdiction of those courts which exercise their Judicial powers ac- cording to the course of the gommon law. Peo- ple v. McGowan, 77 111. 644, 20 Am. Rep. 254 ; In re Conner, 39 Cal. 98, 2 Am. Rep. 430 : U.

S. v. Power, 27 Fed. Cas. 607.— Common-law lien. One known, to or granted by the com- mon law, as distinguished from statutory, equi- table, and maritime liens ; also one arising by implication of law, as distinguished from one created by the agreement of the parties. The Menominie (D. C.) 30 Fed. 197 ; Tobacco Ware- house Co. v. Trustee, 117 Ky. 478. 78 S. W. 413, 64 L. R. A. 219. — Common-law mar- riage. One not solemnized in the ordinary wav, but created by an agreement to marry, followed by cohabitation ; a consummated agreement to marry, between a man and a woman, per verba de present!, followed by co- habitation. Taylor v. Taylor, 10 Colo. App. 303, 50 Pac. 1049 ; Cuneo v. De Cuneo, 24 Tex. Civ. App. 436, 59 8. W. 284 ; Morrill v. Palm- er. 68 Vt. 1. 33 Atl. 829. 33 L. R. A. 411.— Common-law mortgage. One possessing the characteristics or fulfilling the requirements of a mortgage at common law ; not known in Louisiana, where the civil law prevails; but such a mortgage made in another state and af- fecting lands in Louisiana, will be given effect there as a “conventional" mortgage, affecting third persons after due inscription. Gates v. Gaither, 46 La. Ann. 286, 15 South. 50.— Common-law procedure acts. Three acts of parliament, passed in the years 1852. 1854. and 1860. respectively, for the amendment of the procedure in the common-law courts. The common-law procedure act of 1852 is St. 15 tc 16 Viet. c. 76: that of 1854, Bt. 17 & 18 Viet. e. 125; and that of 1860. St. 23 &.24 Viet. c. 126. Mozlev & Whitley.— Common- law wife. A woman who was' party to a “common-law marriage,” aa above defined: or one who, having lived with a man in a relation of concubinage during his life, asserts a claim, after his death, to have been his wife according to the requirements of the common law. In re Brush, 25 App. Div. 610. 49 N. Y. Supp. 803. —Common lawyer. A lawyer learned in the common law.

Common opinion la good authority in law. Co. Lift. 186a; Bank of Utica v. Mer- sereau, 3 Barb. Ch. (N. Y.) 528. 577, 49 Am. Dec. 189.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Erie R.R. v. Tompkins, 304 U.S. 64 (1938)]**

The entry defines the common law as judge-made law from usage, custom, and court decisions; the landmark decision fixing the limits of that authority in the federal courts holds there is no federal general common law.

Why: Erie is the foundational decision on what 'common law' federal courts may apply — the entry's sense-2

definition (law deriving authority from usages, customs, and judicial decisions) is precisely the body of law whose... [re-homed from 'COMMON LAW' to 'COMMON BENCH' (OCR headword / parser-merge artifact)]

## COMMON PLEAS.

The name of a court of record having general original Jurisdic- tion in civil suits.

Common causes or suits. A term anciently used to denote civil actions, or those depend- ing between subject and subject, as distin- guished from pleas of the crown. DaUett v. Feltus, 7 Pbila. (Pa.) 627.

5e apparatus — Carried into the 5th edition (1979).

## COMMON PLEAS, THE COURT OF.

In English law. (So called because its orig- inal jurisdiction was to determine controver- sies between subject and subject) One of the three superior courts of common law at Westminster, presided oyer by a lord chief

justice and five (formerly four, until 31 & 32 Vlct c. 125, | 11, subsec. 8) ptiisnd judges. It was detached from the king’s court (aula regia ) as early as the reign of Richard I., and the fourteenth clause of Magna Charta enacted that it should not follow the king’s court, but be held in some certain place. Its jurisdiction was altogether confined to civil matters, having no cognizance in criminal cases, and was concurrent with that of the queen's bench and exchequer In personal actions and ejectment Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## COMMON RECOVERY.

In conveyanc- ing. A species of common assurance, or mode of conveying lands by matter of record, formerly in frequent use in England. It was in the nature and form of an action at law, carried regularly through, and ending in a recovery of the lands against the ten- ant of the freehold; which recovery, being a supposed adjudication of the right bound all persons, and vested a free and absolute fee- simple in the reeoverer. 2 Bl. Comm. 357. Christy v. Burch, 25 Fla. 942, 2 South. 258. Common recoveries were abolished by the statutes 3 & 4 Wm. IV. c. 74.

5e apparatus — Not carried into the 5th edition (1979).

## COMMONABLE.

Entitled to common. Commonable beasts are either beasts of the plow, as horses and oxen, or such as manure the land, as kine and sheep. Beasts not commonable are swine, goats, and the like. Co. Litt 122a; 2 Bl. Comm. 33.

5e apparatus — Carried into the 5th edition (1979).

## COMMONAGE.

In old deeds. The right of common. See Common.

5e apparatus — Not carried into the 5th edition (1979).

## COMMONALTY.

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In English law. The

great body of citizens; the mass of the peo- ple, excluding the nobility.

In American law. The body of people composing a municipal corporation, exclud- ing the corporate officers.

5e apparatus — Not carried into the 5th edition (1979).

## COMMON ANCE.

The commoners, or tenants and inhabitants, who have the right of common or coinmoning in open field. Cow- elL

COMMONERS, in English law. Per- sons having a right of 'common. So called because they have a right to pasture On the waste, in common with the lord. 2 H. Bl. 889.

COMMONS. 1. The class of subjects in Great Britain exclusive of the royal family and the nobility. They are represented in parliament by the house of commons.

2. Part of the demesne land of a manor, (or land the property of which was in the )ord,) which, being uncultivated, was termed the "lord's waste,*' and served for public roads and for common of pasture to the lord and bis tenants. 2 Bl. Comm. 90. MENT. In the English parliament The lower house, so called because the commons of the realm, that is, the knights, citizens, and burgesses returned to parliament repre- senting the whole body of the commons, sit there.

5e apparatus — Carried into the 5th edition (1979).

## COMMONTY.

In Scotch law. Land pos- sessed in common by different proprietors, or by those having acquired rights of servitude. BelL

5e apparatus — Not carried into the 5th edition (1979).

## COMMONWEALTH.

The public or com- mon weal or welfare. This cannot be re- garded as a technical term of public law, though often used in political science. It generally designates, when so employed, a republican frame of government, — one in which the welfare and rights of the entire mass of people are the main consideration, rather than the privileges of a class or the will of a monarch ; or it may designate the body of citizens living under such a govern- ment. Sometimes it may denote the corpo- rate entity, or the government, of a jural society (or state) possessing powers of self- government in respect of its immediate con- cerns, but forming an Integral part of a lar- ger government, (or nation.) In this latter sense, it is the official title of several of the United States, (as Pennsylvania and Massa- chusetts,) and would be appropriate to them all. In the former sense, the word ‘was used to designate the English government during the protectorate of Cromwell. See Govern- ment; Nation; State. (State v. Lambert, 44 W. Va. 308, 28 S. E. 930.)

5e apparatus — Not carried into the 5th edition (1979).

## COMMORANCY.

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The dwelling in any place as an inhabitant; which consists in usually lying there. 4 Bl. Comm. 273. In American law it Is used to denote a mere temporary residence. Ames v. Wlnsor. 19 Pick. (Mass.) 248; Pullen v. Monk, 82 Me. 412, 19 Atl. 909; Gilman vj Inman, 85 Me. 105, 26 Atl. 1049.

5e apparatus — Not carried into the 5th edition (1979).

## COMMORANT.

Staying or abiding; dwelling temporarily in a place.

5e apparatus — Not carried into the 5th edition (1979).

## COMMORXENTES.

Several persons who perish at the same time in consequence of the same calamity.

COMMORTH, or COMORTH. A contri- bution which was gathered at marriages, and when young priests said or sung the first masses. Prohibited by 26 Hen. VIII. c. 6. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Uniform Simultaneous Death Act — where the order of death cannot be proved, each decedent is treated as having predeceased the other]**

The entry defines the simultaneous-death problem but not its operative rule: where the order of death cannot be determined, each decedent is deemed to have predeceased the other for succession purposes.

Why: The uniform act is the real statutory answer to the exact fact pattern the entry defines (persons perishing together in the same calamity); the entry states the problem, the act supplies the rule. Keyed under the corr... [re-homed from 'COMMORIENTES' to 'COMMORXENTES' (OCR headword / parser-merge artifact)]

## COMMOTE.

Half a cantred or hundred in Wales, containing fifty vilages. Also a great seignory or lordship, and may include one or divers manors. Co. Litt 5.

5e apparatus — Not carried into the 5th edition (1979).

## COMMOTION.

A "civil commotion” is an insurrection bf the people for general purposes, though it may not amount to rebellion where there is a usurped power. 2 Marsh. Ins. 793; Boon v. Insurance Co., 40 Conn. 584; Grame v. Assur. Soc., 112 U. S. 273, 5 Sup. Ct. 150, 28 L. Ed. 716; Spruill v. Insurance Co., 46 N. O. 127.

COMMUNE, n. A self-governing town or village. The name given to the committee of the people In the French revolution of 1793 ; and again. In the revolutionary uprising of 1871, It signified the attempt to establish absolute self-government In Paris, or the mass of those concerned In the attempt In old French law, It signified any municipal corporation. And in old English law, the commonalty or common people. 2 Co. Inst 540.

COMMUNE, adj. Lat Common.

— Commune concilium regnL The common council of the realm. One of the names of the

English parliament.— Commune forum. The common place of justice. The seat of the principal courts, especially those that are fixed. — Commune placitum. In old English law. A common plea or civil action, such as an ac- tion of debt.— Commune vinculum. A com- mon or mutual bond. Applied to the common stock of consanguinity, and to the feodal bond of fealty, as the common bond of union be- tween lord and tenant. 2 Bl. Comm. 259; 3 Bl. Comm. 230.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNX CUSTODIA.

In English law. An obsolete writ which anciently lay for the lord, whose tenant, holding by knight's service, died, and left his eldest son under age, against a stranger that entered the land, and obtained the ward of the body. Reg Orig. 161. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNX DIVIDUNDO.

In the civil law. An action which lies for those who have property in common, to procure a divi- sion. It lies where parties hold land in com- mon but not in partnership. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIA.

In old English law. Com- mon things, res communes. Such as running water, the air, the sea, and sea shores. Bract. foL 76.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIA PLACITA.

In old English law. Common pleas or actions; those be- tween one subject and another, as distin- guished from pleas of the crown.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIA PLACITA NON TEN- / ENDA IN SCACCARIO.

An ancient writ directed to the treasurer and barons of the exchequer, forbidding them to hold pleas between common persons ( i . e., not debtors to the king, who alone originally sued and were sued there) in that court, where neither of the parties belonged to the same. Reg. Orig. 187.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS.

In feudal law on the con- tinent of Europe, this name was given to towns enfranchised by the crown, about the

twelfth century, and formed into free corpo- rations by grants called “charters of com- munity.”

5e apparatus — Not carried into the 5th edition (1979).

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## COMMUNIBUS ANNI8.

In ordinary years; on the annual average.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNICATION.

Information given; the sharing of knowledge by one with an- other; conference; consultation or bargain- ing preparatory to making a contract. Also intercourse; connection. ,

la French law. The production of a merchant’s books, by delivering them either to a person designated by the court, or to his adversary, to be examined in all their parts, and as shall be deemed necessary to the suit Arg. Fr. Merc. Law, 552.

—Confidential communications. These are certain classes of communications, passim; be- tween persons who stand in a confidential or fiduciary relation to each other, (or who, on ac- count of their relative situation, are under a special duty of secrecy and fidelity,) which the law will not permit to be divulged, or allow them to be inquired into in a court of justice, for the sake of public policy and the good or- der of society. Examples of such privileged re- lations are those of husband and wife and at- torney and client. Hatton v. Robinson, 14 Pick. fMass.) 416, 25 Am. Dec. 415; Parker v. Carter, 4 Munf. (Va.) 287, 6 Am. Dec. 513; Chirac v. Reinieker, 11 Wheat. 280, 6 L. Ed. 474 ; Parkhurst v. Berdeil, 110 N. Y. 386. 18

N. E. 123, 6 Am. St Rep. 384.— Privileged communication. In the law of evidence. A communication made to a counsel, solicitor, or attorney, in professional confidence, and which he is not permitted to divulge; otherwise called a “confidential communication.” 1 Starkie, Ev. 185. In the law of libel and slander. A de- famatory statement made to another in pursu- ance of a duty, political, judicial, social, or personal, so that an action for libel or slander will not lie, though the statement he false, unless in the last two cases actual malice be proved in addition. Bacon v. Railroad Co., 66 Mich. 166. 33 N. W. 181.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNXNGS.

In Scotch law. The negotiations preliminary to the entering Into a contract

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIO BONORUM.

In the civil law. A term signifying a community ( q . v.) of goods.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 4:32, KJV]**

neither said any of them that ought of the things which he possessed was his own; but they had all things common.

Why: Community of goods as a lived juridical fact — possession held without exclusive claim. The entry's exact concept. (Narrative: no flag.)

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## COMMUNION OP GOODS.

In Scotch law. The right enjoyed by married persons in the movable goods belonging to them. Bell.

Communis error facit jns. Common error makes law. 4 Inst 240; Noy, Max. p. 37, max. 27. Common error goeth for a law. Finch, Law, b. 1, c. 3, no. 54. Common error sometimes passes current • as law. Broom, Max. 139, 140.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS OPINIO.

Common opinion ; general professional opinion. According to Lord Coke, (who places it on the footing of observance or usage,) common opinion is good authority in law. Co. Litt. 186a.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS PARIES.

In the civil law. A common or party wall. Dig. 8, 2, 8. 13.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS RIXATRIX.

In old Eng- lish law. A common scold, ( q . v.) 4 Bl. Comm. 168.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS SCRIFTURA.

In old Eng- lish law. A common writing ; a writing com- mon to both parties; a chirograph. Qian, lib. 8, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNIS STIPES.

A common stock of descent; a common ancestor.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNISM.

A name given to pro- posed systems of life or social organization based upon the fundamental principle of the non-existence of private property and of a community of goods In a society.

An equality of distribution of the physical means of life and enjoyment as a transition to a still higher standard of justice that all should work according to their capacity and receive ac- cording to their wants. 1 Mill, Pol. Ec. 24 8.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Orwell, Animal Farm, 1945]**

The rewritten commandment: "All animals are equal, but some animals are more equal than others."

Why: Entry defines communism as systems founded on the non-existence of private property. The verbatim line

(certain) ironically inverts the founding principle — the irony is the genuine illumination.

## COMMUNITAS REGNI ANOIXS.

The

general assembly of the kingdom of England. One of the ancient names of the English parliament 1 Bl. Comm. 148.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUNITT.

A society of people liv- ing In the same place, under the same laws and regulations, and who have common rights and privileges. In re Hubs, 126 N. Y. 537, 27 N. B. 784, 12 L. R. A. 620; QUman v. Dwight 13 Gray (Mass.) 356, 74 Am. Dec. 634; Cunningham v. Underwood, 116 Fed. 808, 53 C. C. A. 99; Berkson v. Railway Co., 144 Mo. 211, 45 S. W. 1119.

In the civil law. A corporation or body politic. Dig. 3, 4.

In French law. A species of partnership which a man and a woman contract when they are lawfully married to each other.

— Community debt. One chargeable to the community (of husband and wife) rather than to either of the parties individually. Calhoun v. Leary, 6 Wash. 17, 32 Pac. 1070. — Community of profits. ThiB term, as used in the definition of a partnership, (to which a community of profits is essential.) means a propri- etorship in them as distinguished from a personal claim upon the other associate, a property right' in them from the start in one associate as much as in the other. Bradley v. Ely. 24 Ind. App. 2, 56 N. E. 44, 79 Am. St. Rep. 251 ; Moore v. Williams, 26 Tex. Civ. App. 142. 02 S. W. 977. — Community property. Com- munity property is property acquired by hus- band and wife, or either, during marriage, when not acguired as the separate property of either. In re Lux’s Estate, 114 Cal. 73, 45 Pac. 1023 ; Mitchell v. Mitchell. 80 Tex. 101. 15 S. W. 705; Ames v. Hubby. 49 Tex. 705; Holyoke v. Jackson, 3 Wash. T. 235, 3 Pac. 841 ; Civ. Code Cal. jj 687. This partnership or com- munity consists of the profits of all the effects of which the husband has the administration and enjoyment, either of right or in fact, of the produce of the reciprocal industry and labor of both husband and wife, and of the estates which they may acquire during the marriage, either by donations made jointly to them both.

or by purchase, or in any other similar way, even although the purchase be only in the name of one of the two, and not of both, because in that case the period of time when the purchase is made is alone attended to, and not the per- son who made the purchase. Civ. Code La. art. 2402.

5e apparatus — Not carried into the 5th edition (1979).

## COMMUTATION.

In criminal law.

Change; substitution. The substitution of one punishment for another, after conviction of the party subject to it The change of a punishment from a greater to a less ; as from

hanging to imprisonment.

Commutation of a punishment Is not a con- ditional pardon, but the substitution of a lower for a higher grade of punishment, and Is presumed to be for the culprit's benefit. In re Victor, 31 Ohio St 207; Ex parte Janes, 1 Nev. 321; Rich v. Chamberlain, 107 Mich. 881, 65 N. W. 235.

In civil matters. The conversion of the right to receive a variable or periodical pay- ment Into the right to receive a fixed or gross payment Commutation may be effected by private agreement but It is usually done under a statute.

—Commutation of taxes. Payment of a designated lump sum (permanent or annual) for the privilege of exemption from taxes, or the settlement in advance of a specific sum in lieu of an ad valorem tax. Cotton Mfg. Co. v. New Orleans, 31 La. Ann. 440.— Commuta- tion of tithes. Signifies the conversion of tithes Into a fixed payment in money.— Commu- tation ticket. A railroad ticket giving the holder the right to travel at a certain rate for a limited number of trips (or for an unlimited number within a certain period of time) for a less amount than would be paid in the aggre- gate for so many separate trips. Interstate Commerce Com’n v. Baltimore & O. R. Co. (C. C.) 43 Fed. 56.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 2:13, KJV]**

and mercy rejoiceth against judgment.

Why: Commutation is the legal form of mercy operating inside judgment — the sentence softened after conviction. The verse states the principle the entry institutionalizes. (Apostolic: no flag.)

## COMMUTATIVE CONTRACT.

See

5e apparatus — Carried into the 5th edition (1979).

## CONTBACT.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## COMMUTATIVE JUSTICE.

See Jus- tice.

5e apparatus — Carried into the 5th edition (1979).

## COMPACT.

An agreement or contract. Usually applied to conventions between na- tions or sovereign states.

A compact is a mutual consent of parties concerned respecting some property or right that is the object of the stipulation, or some- thing that Is to be done or forborne. Chesa- peake & O. Canal Co. v. Baltimore & O. R. Co.. 4 Gill & J. (Md.) 1.

The terms “compact” and “contract” are synonymous. Green v. Biddle, 8 Wheat. 1, 92, 5 L.

Ed. 547.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 10, cl. 3 — Compact Clause]**

The entry defines compact as agreement, usually between nations or sovereign states; the constitutional provision governing compacts between states (and with foreign powers) requires congressional consent.

Why: The Compact Clause ('No State shall, without the Consent of Congress, ... enter into any Agreement or Compact with another State, or with a foreign Power') is the precise constitutional home of the sovereign-compact s...

**[Scripture] — Scripture**

**[Genesis 31:44, KJV]**

Now therefore come thou, let us make a covenant, I and thou; and let it be for a witness between me and thee.

Why: A compact between two parties sealed with a witness — Jacob and Laban's covenant is the scriptural type of the inter-party compact the entry defines. (Jacob speaking: no flag.)

## COMPANAGE.

All kinds of food, ex- cept bread and drink. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## COMPANIES CLASSES CONSOLIDA- / TION ACT.

An English statute, (8 Viet c. 16,) passed in 1845, which consolidated the clauses of previous laws still remaining In force on the subject of public companies. It is considered as Incorporated Into all sub- sequent acts authorizing the execution, of

undertakings of a public nature by com- panies. unless expressly excepted by such later acts. Its purpose Is declared by the preamble to be to avoid repeating provisions as to the constitution and management of the companies, and to secure greater uni- formity In such provisions. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## COMPANION OF THE GARTER.

One

of the knights of the Order of the Garter.

5e apparatus — Not carried into the 5th edition (1979).

## COMPANIONS.

In French law. A gen- eral term, comprehending all persons who compose the crew of a ship or vessel. Poth. Mar. Cont no. 163.

5e apparatus — Not carried into the 5th edition (1979).

## COMPANY.

A society or association of persons, In considerable number, interested In a common object, and uniting themselves for the prosecution of some commercial or industrial undertaking,

or other legitimate business. Mills v. State, 23 Tex. 308; Smith ▼. Janesville, 52 Wis. 680, 9 N. W. 789.

The proper signification of the word "com- pamv," when applied to persons engaged In trade, denotes those united for the same purpose or in a joint concern. It is so commonly used in this sense, or as Indicating a partnership, that few persons accustomed to purchase goods at shops, where they are sold by retail, would misapprehend that such was its meaning. Palmer v. Pinkham, 33 Me. 32.

Joist stock companies. Joint stock com- panies are those having a joint stock or capital, which Is divided Into numerous trans- ferable shares, or consists of transferable stock. Llndl. Partn. 6.

The term Is not identical frith "partner- ship," although every unincorporated society Is, In its legal relations, a partnership. In common use a distinction Is made, the name "partnership" being reserved for business associations of a limited number of persons (usually not more than four or five) trading under a name composed of their Individual names set out in succession; while "com- pany" is appropriated as the designation of a society comprising a larger number of persons, with greater capital, and engaged in more extensive enterprises, and trading under a title not disclosing the names of the Individuals. See Allen v. Long, 80 Tex. 261, 16 S. W. 43, 26 Am. St. Rep. 735 ; Adams Exp. Co. v. Schofield, 111 Ky. 832, 64 S. W. 903; KoBsakowskI v. People, 177 111. 563, 53

N. E. 115; In re Jones, 28 Misc. Rep. 356, 59 N. Y. Supp. 983 ; Attorney General v. Mercantile Marine Ins. Co., 121 Mass. 525.

Sometimes the word is used to represent those members of a partnership whose names do not appear in the name of the firm. See 12 Toullier, 97.

— Limited company. A company in which the liability of each shareholder is limited by the number of shares he has taken, so that he cannot be called on to contribute beyond the amount of his shares. In England, the memo- randum of association of such company may pro- vide that the liability of the directors, manager, or managing director thereof shall he unlimit- ed. 30 A 31 Viet. c. 131 ; 1 Lindl. Partn. 383 ;

Mozley & Whitley.— Public company. In

English law. A business corporation ; a so- ciety of persons joined together for carrying on some commercial or industrial undertaking.

5e apparatus — Carried into the 5th edition (1979).

## COMPARATIO MTERARUM.

In the

civil law. Comparison of writings, or hand- writings. A mode of proof allowed in cer- tain cases.

5e apparatus — Not carried into the 5th edition (1979).

## COMPARATIVE.

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Proceeding by the method of comparison; founded on compari- son; estimated by comparison.

—Comparative Interpretation. That meth- od of interpretation which seeks to arrive at the meaning of a statute or other writing by comparing its several parts and also by com- paring it as a whole with other like documents proceeding from the same source and referring to the same general subject. Glenn v. York County, 6 Rich. (8. C.) 412. — Comparative jurisprudence. The study of the principles of legal science by the comparison of various systems of law.— Comparative negligence. That doctrine in the law of negligence by which the negligence of the parties is compared, in the degrees of “slight,” “ordinary,” and “gross” • negligence, and a recovery permitted, notwith- standing the contributory negligence of the plaintiff, when the negligence of the plaintiff is slight and the negligence of the defendant gross, but refused when the plaintiff has been guilty of a want of ordinary care, thereby con- tributing to his injury, or when the negligence of the defendant is not gross, but only ordinary or slight, when compared, under the circumstan- ces of the case, with the contributory negligence of the plaintiff. 3 Amer. & Eng. Enc. I .aw, 367. See Steel Co. v. Martin. 115 111. 358. 3 N.

E. 456; Railroad Co. v. Ferguson, 113 Ga. 708. 39 S. E. 306. 54 L. R. A. 802 ; Straus v. Railroad Co.. 75 Mo. 185; Hurt v. Railroad Co.. 94 Mo. 255, 7 S. W. 1, 4 Am. St. Rep. 374.

5e apparatus — Carried into the 5th edition (1979).

## COMPARISON OF HAND WRITING.

A comparison by the Juxtaposition of two writings, in order, by such comparison, to ascertain whether both were written by the same person.

A method of proof resorted to where the genuineness of a written document Is dis- puted; It consists in comparing the hand- writing of the disputed paper with that of another instrument which is proved or ad- mitted to be in the writing of the party sought to be charged, In order to infer, from their identity or similarity In this respect, that they are the work of the same hand. Johnson v. Insurance Co., 105 Iowa, 273, 75

N. W. 101; Rowt v. Kile. 1 Leigh (Va.) 216; Travis v. Brown, 43 Pa. 9, 82 Am. Dec. 540.

5e apparatus — Carried into the 5th edition (1979).

## COMPASCUUM.

Belonging to common- age. Jus compascuum, the right of common of pasture.

5e apparatus — Not carried into the 5th edition (1979).

## COMPASS, THE MARINER’S.

An in- strument used by mariners to point out the course of a ship at sea. It consists of a magnetized steel bar called tbe “needle,” at- tached to tbe under side of a card, upon which are drawn the points of the compass, and supported by a fine pin, upon which it turns freely in a horizontal plane.

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## COMPASSING.

Imagining or contriv- ing, or plotting. In English law, “compas- sing the king's death’’ is treason. a ri. Comm. 76.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 2:1, KJV]**

Why do the heathen rage, and the people imagine a vain thing?

Why: 'Imagine' here is compassing — plotting; and the plot is against the LORD's anointed, the king. The archetypal compassing-the-king passage. (Psalmist: no flag.)

## COMPATERNITAS.

In the canon law. A kind of spiritual relationship contracted by baptism.

5e apparatus — Not carried into the 5th edition (1979).

## COMPATERNITY.

Spiritual affinity, contracted by sponsorship in baptism.

5e apparatus — Carried into the 5th edition (1979).

## COMPATIBILITY.

Such relation and consistency between the duties of two offices that they may be held and filled by one person.

5e apparatus — Carried into the 5th edition (1979).

## COMPEAR.

In Scotch law. To appear.

5e apparatus — Not carried into the 5th edition (1979).

## COMPEARANCE.

In Scotch practice. Appearance; an appearance made for a de- fendant; an appearance by counsel. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## COMPELLATIVUS.

An adversary or accuser.

Compendia sunt dispendio. Co. Litb 305. Abbreviations are detriments.

5e apparatus — Not carried into the 5th edition (1979).

## COMPENDIUM.

An abridgment, syn- opsis, or digest.

5e apparatus — Not carried into the 5th edition (1979).

## COMPENSACION.

In Spanish law. Compensation; set-off. The extinction of a debt by another debt of equal dignity.

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5e apparatus — Not carried into the 5th edition (1979).

## COMPENSATIO.

Lab In the civil law. Compensation, or set-off. A proceeding re- sembling a set-off in the common law, being a claim on the part of the defendant to have an amount due to him from the plaintiff de- ducted from his demand. Dig. 16, 2; Inst 4, 6, 30, 39 ; 3 Bl. Comm. 305.

— Compensatlo crimlnis. (Set-off of crime or guilt.) In practice. The plea of recrimination in a suit for a divorce ; that is, that the com- plainant is guilty of the same kind of offense with which the respondent is charged.

5e apparatus — Not carried into the 5th edition (1979).

## COMPENSATION.

Indemnification ; pay- ment of damages; making amends; that which is necessary to restore an injured par- ty to his former position. An act which a court orders to be done, or money which a court orders to be paid, by a person whose acts or omissions have caused loss or injury to another, in order that thereby the person damnified may receive equal value for his loss, or be made whole in respect of his in- jury. Railroad Co. v. Denman, 10 Minn. 280 (Gil. 208).

Also that equivalent in money which is paid to the owners and occupiers of lands taken or injuriously affected by the opera- tions of companies exercising the power of eminent domain.

In the constitutional provision for “just compensation” for property taken under the

power of eminent domain, this term means a payment in money. Any benefit to the re- maining property of the owner, arising from public works for which a part has been tak- en, cannot be considered as compensation. Bailroad Co. v. Burkett, 42 Ala. 83.

As compared with consideration and damages compensation, in its most careful use, seems to be between them. Consideration is amends for something given by consent, or by the owner’s choice. Damages is amends exacted from a wrong-doer for a tort. Compensation is amends for something which was taken without the own- er’s choice, yet without commission of a torb Thus, one should say, consideration for land sold ; compensation for land taken for a rail- way ; damages for a trespass. But such dis- tinctions are not uniform. Land damages is a common expression for compensation for lands taken for public use. Abbott.

The word also signifies the remuneration or wages given to an employ^ or officer. But it is not exactly synonymous with “salary." See People v. Wemple, 115 N. Y. 302, 22 N.

E. 272; Com. v. Carter, 55 S. W. 701, 21 Ky. Law Rep. 1509; Crawford County v. Lindsay, 11 111. App. 261; Kilgore v. Peo- ple, 76 111. 548.

In the civil, Scotch, and French law.

Recoupment; set-off. The meeting of two debts due by two parties, where the debtor in the

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one debt is the creditor in the other; that is to say, where one person is both debtor and creditor to another, and there- fore, to the extent of what is due to him, claims allowance out of the sum that he is due. Bell ; 1 Karnes, Eq. 395, 396.

Compensation is of three kinds,— legal, or by operation of law ; compensation by way of ex- ception; and by reconvention. Stewart v. Harper, 16 La. Ann. 181.

—Compensatory damages. See Damages.'

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — Takings Clause ("nor shall private property be taken for public use, without just compensation")]**

The entry expounds 'just compensation' for property taken under eminent domain; the constitutional source of that phrase is the Fifth Amendment's Takings Clause.

Why: The entry's second and third paragraphs are a gloss on 'just compensation' in takings; the Takings Clause is the verbatim source of the phrase and the anchor of the cited Railroad v. Burkett discussion. Real, verbatim...

**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The archetypal restitution measure — the injured party restored, with the multiple prescribed by law. The entry's concept in its oldest statutory form. (Book of the Covenant, delivered as the LORD's speech: red-letter...

# O

## OOMPERENDINATIO.

In the Roman law. The adjournment of a cause, in order to hear the parties or their advocates a sec- ond time; a second hearing of the parties to a causa Calvin.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COMPERTORIUM.

In the civil law. A judicial inquest made by delegates or com- missioners to find out and relate the truth of a cause.

5e apparatus — Not carried into the 5th edition (1979).

## COMPERUIT AD DIEM.

In practice. A plea in an action of debt on a bail bond that the defendant appeared at the day re- quired.

5e apparatus — Not carried into the 5th edition (1979).

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## COMPETENCY.

In the law of evi- dence. The presence of those characteris- tics, or the absence of those disabilities, which render a witness legally fit and quali- fied to give testimony in a court of justice. The term is also applied, in the same sense, to documents or other written evidence.

Competency differs from credibility. The former is a question which arises before con- sidering the evidence given by the witness; the latter concerns the degree of credit to be

given to his story. The former denotes the personal qualification of the witness; the latter his veracity. A witness may Be com- petent, and yet give Incredible testimony; he may be Incompetent, and yet his evi- dence, If received, be perfectly credible. Competency Is for the court; credibility for the Jury. Yet In some cases the term "cred- ible” Is used as an equivalent for “compe- tent.’’ Thus, In a statute relating to the execution of wills, the term “credible wit- ness” is held to mean one who Is entitled to he examined and to give evidence In a court of justice; not necessarily one who Is personally worthy of belief, but one who Is not disqualified by imbecility, interest, crime, or other cause. 1 Jarm. Wills, 124; Smith v. Jones, 68 Vt 132, 34 Atl. 424; Com. v. Holmes, 127 Mass. 424, 34 Am. Rep. 391.

In French law. Competency, as applied to a court, means Its right to exercise juris- diction in a particular case.

5e apparatus — Carried into the 5th edition (1979).

## COMPETENT.

Duly qualified; answer- ing all requirements; adequate; suitable; sufficient; capable; legally fit. Levee Dlst. v. Jamison, 176 Mo. 557, 75 S. W. 679. .

— Competent and omitted. In Scotch prac- tice. A term applied to a plea which might have been urged by a party during the depend- ence of a cause, but which had been omitted. Bell.— Competent authority. As applied to courts and public officers, this term imports ju- risdiction and due legal authority to deal with the particular matter in question. Mitchel v.

U. S., 9 Pet. 735 9 L. Ed. 283; Charles v. Charles, 41 Minn. 201, 42 N. W. 935— Compe- tent evidence. That which the very nature of the thing to be proven requires, as the pro- duction of a writing where its contents are the subject of inquiry. 1 Greenl. Ev. g 2; Chap- man v. McAdams, 1 Lea (Tenn.) 500; Horbach v. State, 43 Tex. 242; Porter v. Valentine, 18 Misc. Rep. 2l3, 41 N. Y. Supp. 507.— Compe- tent witness. One who is legally qualified to be heard to testify in a cause. Hogan v. Sher- man, 5 Mich. 60; People v. Compton, 123 Cal. 403, 56 Pac. 44 ; Com. v. Mullen, 97 Mass. 545. See Competency.

5e apparatus — Carried into the 5th edition (1979).

## COMPETITION.

In Scotch practice. The contest among creditors claiming on their respective diligences, or creditors claim- ing on their securities. Bell.

—Unfair competition in trade. See Un- fair.

5e apparatus — Carried into the 5th edition (1979).

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## COMPILE.

To compile Is to copy from various authors Into one work. Between a compilation and an abridgment there Is a clear distinction. A compilation consists of selected extracts from different authors; an abridgment is a condensation of the views of one author. Story v. Holcombe, 4 Mc- Lean, 306, 314, Fed. Cas. No. 13,497.

—Compilation. A literary production, com- posed of the works of others and arranged in a methodical manner.— Compiled statutes. A collection of the statutes existing and in force in a given state, all laws and parts of laws relating to each subject-matter being brought together under one head, and the whole arrang- ed systematically in one book, either under an

alphabetical arrangement or some other plan of classification. Such a collection of statutes dif- fers from a code in this, that none of the laws so compiled derives any new force or undergoes any modification in its relation to other stat- utes in pari materia from the fact of the com- pilation, while a code is a re-enactment of the whole body of the positive law and is to be read and interpreted as one entire and homo- geneous whole. Railway Co. v. State, 194 Ga. 831, 31 S. E. 531 ; Black, Interp. Laws, p. 363.

5e apparatus — Carried into the 5th edition (1979).

## COMPLAINANT.

In practice. One who applies to the courts for legal redress; one who exhibits a bill of complaint. This Is the proper designation of one suing in equity, though “plaintiff” is often used in equity proceedings as well as at law. Bene- fit Ass’n v. Robinson, 147 111. 138, 35 N. E. 168.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 18:3, KJV]**

And there was a widow in that city; and she came unto him, saying, Avenge me of mine adversary.

Why: The widow is the complainant in parable form — one applying to the tribunal for redress against an adversary. The entry's concept, dramatized. (The widow's speech, not deity speech: no flag.)

## COMPLAINT.

In civil practice. In

those states having a Code of Civil Proced- ure, the complaint is the first or Initiatory pleading on the part of the plaintiff in a civil action. It corresponds to the declara- tion in the common-law practice. Code N.

Y. § 141; Sharon v. Sharon, 67 Cal. 185, 7 Pac. 456; Railroad Co. v. Young, 154 Ind. 24, 55 N. B. 853; McMath v. Parsons, 26 Minn. 246, 2 N. W. 703.

The complaint shall contain: (1) The title of the cause, specifying the name of the court in which the action is brought, the name of the county in which the trial is reauired to be had, and the names of the parties to the action, plaintiff and defendant. (2) A plain and con- cise statement of the facts constituting a cause of action, without unnecessary repetition ; and

each material allegation shall be distinctly num- bered. (3) A demand of the relief to which the plaintiff supposes himself entitled. If the re- covery of money be demanded, the amount there- of must be stated. Code N. C. 1883, $ 233.

— Cron-complaint. In code practice. When- ever the defendant seeks affirmative relief against any party, relating to or depending upon the contract or transaction upon which the action is brought, or affecting the property to which the action relates, he may, in addition to his answer, file at the same time, or by permis- sion of the court subsequently, a cross-com- plaint. The cross-complaint must be served up- on the parties affected thereby, and such parties may demur or answer thereto as to the original complaint. Code Civ. Proc. Cal. § 442 ; Stand- ley v. Insurance Co., 95 Ind. 254 ; Harrison v. McCormick. 69 Cal. 616, 11 Pac. 456 ; Bank v. Ridpath, 29 Wash. 687, 70 Pac. 139.

In criminal law. A charge, preferred before a magistrate having jurisdiction, that a person named (or an unknown person) has committed a specified offense, with an offer to prove the fact, to the end that a prosecu- tion may be Instituted. It is a technical term, descriptive of proceedings before a magistrate. Hobbs v. Hill, 157 Mass. 556, 32 N. E 862 ; Com. v. Davis, 11 Pick. (Mass.) 43G ; U. S. v. Collins (D. C.) 79 Fed. 66; State v. Dodge Co., 20 Neb. 595, 31 N. W. 117.

The complaint is an allegation, made before a proper magistrate, that a person has been guilty of a designated public offense. Code Ala. 1886, § 4255.

COMPLETE, ad). 1. Full; entire; In- cluding every Item or element of the thing spoken of, without omissions or deficiencies ; as, a "complete” copy, record, schedule, or transcript. Yeager v. Wright, 112 Ind. 230, 13 N. B. 707; Anderson v. Ackerman, 88 Ind. 490; Bailey v. Martin, 119 Ind. 103, 21 N. E. 346.

2. Perfect; consummate; not lacking In any element or particular; as In the case of a "complete legal title” to land, which includes the possession, the right of posses- sion, and the right of property. Dingey v. Paxton, GO Miss. 1054; Bhle v. Quacken- boss, 6 Hill (N. Y.) 537.

5e apparatus — Carried into the 5th edition (1979).

## COMPLICE.

One who is united with others In an ill design ; an associate ; a con- federate; an accomplice.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 1:10, KJV]**

My son, if sinners entice thee, consent thou not.

Why: The verse names the exact formation of the complice — union with others in an ill design, via enticement — and forbids it. Genuine bearing. (Wisdom voice: no flag.)

## COMPOS MENTIS.

Sound of mind. Having use and control of one’s mental fac- ulties.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Cypress Hill, 'Insane in the Brain', 1993]**

"Insane in the membrane / Insane in the brain" — stated honestly as illumination by negation: the term marks the legal threshold of soundness of mind ("use and control of one's mental faculties"), and the hook is vernacular for standing on the wrong side of that line.

Why: Added with the by-negation relationship stated plainly rather than implied: the lyric names the absence of the compos-mentis state, which throws the term's boundary into relief. Caveat recorded: the song's "insane" is...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, c. 1600]**

(paraphrase) Hamlet announces he will 'put an antic disposition on,' making his soundness of mind — whether he truly has use and control of his mental faculties — the play's open question. (paraphrase)

Why: Entry defines compos mentis as sound of mind. Hamlet's feigned madness is the canonical literary raising of the soundness-of-mind question; paraphrase marked.

## COMPOS SHI.

Having the use of one’s limbs, or the power of bodily motion. SI fuit ita compos sui quod itincrare p otuit de loco in locum , If he had so far the use of his limbs as to be able to travel from place to place. Bract, fol. 146.

5e apparatus — Not carried into the 5th edition (1979).

## COMPOSITIO MENSTTRARUM.

The

ordinance of measures. The title of an an- cient ordinance, not printed, mentioned In the statute 23 Hen. VIII. c. 4; establishing a standard of measures. 1 Bl. Comm. 275.

5e apparatus — Not carried into the 5th edition (1979).

## COMPOSITIO HEN ARUM ET PER- / TICARUM.

The statute of ells and perch- es. The title of an English statute establish- ing a standard of measures. 1 Bl. Comm. 275.

5e apparatus — Not carried into the 5th edition (1979).

## COMPOSITION.

An agreement, made upon a sufficient consideration, between an insolvent or embarrassed debtor and his creditors, whereby the latter, for the sake of immediate payment, agree to accept a div- idend less than the whole amount of their claims, to be distributed pro rata, In dis- charge and satisfaction of the whole. Bank v. McGeoch, 92 Wis. 286, 06 N. W. 600 ; Crossley v. Moore, 40 N. J. Law, 27 ; Craw- ford v. Krueger, 201 Pa. 348, 50 AO. 931; In re Merriman’s Estate, 17 Fed. Cas. 131; Chapman v. Mfg. Co., 77 Me. 210; In re Ad- ler (D. a) 103 Fed. 444.

“Composition” should be distinguished from "accord.” The latter properly denotes an ar- rangement between a debtor and a single cred- itor for a discharge of the obligation by a part payment or on different terms. The former designates an arrangement between a

debtor and the whole body of his creditors (or at least a considerable proportion of them) for the liquida- tion of their claims by the dividend offered.

In ancient law. Among the Franks, Goths, Burgundians, and other barbarous

peoples, this was the name given to a sum of money paid, as satisfaction for a wrong or personal injury, to the person harmed, or to his family if he died, by the aggressor. It was originally made by mutual agreement of the parties, but afterwards established by law, and took the place of private physi- cal vengeance.

—Composition deed. An agreement embody- ing the terms of a composition between a debtor and his creditors.— Composition in bank- ruptcy. An arrangement between a bankrupt ana his creditors, whereby the amount he can be expected to pay is liquidated, and he is al- lowed to retain his assets, upon condition of his making the payments agreed upon.— Composi- tion of matter. In patent law. A mixture or chemical combination of materials. Good- year v. Railroad Co., 10 Fed. Cas. 664; Cahill v. Brown, 4 Fed. Cas. 1005; Jacobs v. Baker. 7 Wall. 295, 19 L. Ed. 200.— Composition of tithes, or real composition. Tnis arises in English ecclesiastical law, when an agreement is made between the owner of lands and the in- cumbent of a benefice, with the consent of the ordinary and the patron, that the lands shall, for the future, be discharged from payment of tithes, by reason of some land or other real recompense given in lieu and satisfaction there- of. 2 Bl. Comm. 28 ; 3 Steph. Comm. 129.

5e apparatus — Not carried into the 5th edition (1979).

## COMPOTARIUS.

In old English law. A party accounting. Fleta, lib. 2, c. 71, § 17.

COMPOUND, v. To compromise; to ef- fect a composition with a creditor; to ob- tain discharge from a debt by the payment of a smaller sum. Bank v. Malheur Coun- ty, 30 Or. 420, 45 Pac. 781, 35 L. R. A. 141 ; Haskins v. Newcomb, 2 Johns. (N. Y.) 405; Pennell v. Rhodes, 9 Q. B. 114.

5e apparatus — Not carried into the 5th edition (1979).

## COMPOUND INTEREST.

Interest up- on interest, i. e., when the interest of a sum of money is added to the principal, and then bears Interest, which thus becomes a sort of secondary principal. Camp v. Bates, 11 Conn. 487 ; Woods v. Rankin, 2 Heisk. (Tenn.) 46; U. S. Mortg. Co. v. Sperry (C. O.) 26 Fed. 730.

5e apparatus — Carried into the 5th edition (1979).

## COMPOUNDER.

In Louisiana. The

maker of a composition, generally called the "amicable compounder.”

5e apparatus — Carried into the 5th edition (1979).

## COMPOUNDING A FELONS’.

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The of- fense committed by a person who, having been directly injured by a felony, agrees with the criminal that be will not prosecute him, on condition of the latter's making rep- aration, or on receipt of a reward or bribe not to prosecute.

The offense of taking a reward for for- bearing to prosecute a felony; as where a party robbed takes his goods again, or other amends, upon an agreement not to prose- cute. Watson v. State, 29 Ark. 299; Com. v. Pease, 10 Mass. 91.

5e apparatus — Not carried into the 5th edition (1979).

## COMPRA  Y VENTA.

In Spanish law. Purchase and sale.

5e apparatus — Not carried into the 5th edition (1979).

## COMPRINT.

A surreptitious printing of another book-seller's copy of a work, to make gain thereby, which was contrary to common law, and is illegal. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## COMPRIVIGNI.

In the civil law. Chil- dren by a former marriage, (individually called "privigni," or "privignte,") consider- ed relatively to each other. Thus, the son of a husband by a former wife, and the daughter of a wife by a former husband, are the oomprivigni of each other. Inst. 1, 10, 8.

5e apparatus — Not carried into the 5th edition (1979).

## COMPROMISE.

An arrangement arriv- ed at, either in court or out of court, for settling a dispute upon what appears to the parties to be equitable terms, having regard to the uncertainty they are in regarding the facts, or the law and the facts together: Colburn v. Groton, 66 N. H. 151, 28 AO. 95, 22 In R. A. 763 ; Treitschke v. Grain Co, 10 Neb. 358, 6 N. W. 427 ; Attrlll v. Patterson, 58 Md. 226; Bank v. McGeoch, 92 Wis. 286, 66 N. W. 606; Rivers v. Blom, 163 Mo. 442, 63 S. W. 812

An agreement between two or more persons, who, for preventing or -putting an end to a law- suit, adjust their difficulties by mutual consent in the manner which they agree on, and which every one of them prefers to the hope of gain- ing, balanced by the danger of losing. Sharp v. Knox, 4 La. 456.

In the civil law. An agreement where- by two or more persons mutually bind them- selves to refer their legal dispute to the de- cision of a designated third person, who is termed "umpire" or "arbitrator." Dig. 4, 8; Maekeld. Rom. Law, f 471.

Compromissarii aunt indices. Jenk. Cent. 128. Arbitrators are judges.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Matthew 5:25, KJV]**

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Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: The verse counsels exactly the compromise — settle with the adversary before the judge takes the case. Direct bearing on settling a dispute on equitable terms. (Jesus' own words: red-letter.)

## COMPROMISSARITJS.

In the civil law. An arbitrator.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:5, KJV]**

I speak to your shame. Is it so, that there is not a wise man among you? no, not one that shall be able to judge between his brethren?

Why: Paul demands the arbitrator's office — a wise man to judge between brethren instead of going to law. The entry's concept, prescribed. (Apostolic: no flag.) [re-homed from 'COMPROMISSARIUS' to 'COMPROMISSARITJS' (OCR headword / parser-merge artifact)]

## COMPROMISSUM.

A submission to arbitration.

Compvomissum ad slmiUtudlnem ju- diciorum redlgitur. A compromise is brought into affinity with judgments. Strong v. Strong, 9 Cush. (Mass.) 571.

OOMPTE ARR£t£. Fr. An account stated in writing, and acknowledged to be correct on its face by the party against whom it is stated. Paschal v. Union Bank of Louisiana, 9 La. Ann. 484.

5e apparatus — Not carried into the 5th edition (1979).

## COMPTER.

In Scotch law. An account- ing party.

5e apparatus — Not carried into the 5th edition (1979).

## COMPTROLLSH.

a public officer of a state or municipal corporation, charged with certain duties in relation to the fiscal affairs of the same, principally to examine and au- dit the accounts of collectors of the public money, to keep records, and report the financial situation from time to time. There are also officers bearing this name in the treas- ury department of the United States.

— Comptroller in bankruptcy An officer

in England, whose duty it is to receive from the trustee in each bankruptcy his accounts and periodical statements showing the proceed- ings in the bankruptcy, and also to call the trus- tee to account for any misfeasance, neglect, or omission in the discharge of his duties. Robs. Bankr. 13; Bankr. Act 1869, | 55.— -Comp- trollers of the h&naper. In English law. Officers of the court of chancery; their offices were abolished by 5 & 6 Viet c. 103. — State comptroller. A supervising officer of revenue in a state government, whose principal duty is the final auditing and settling of all claims against the state. State v. Doron, 5 Nev. 413.

5e apparatus — Not carried into the 5th edition (1979).

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## COMPULSION.

Constraint ; objective necessity. Forcible inducement to the com- mission of an act. Navigation Co. v. Brown, 100 Pa. 346 ; U. S. v. Kimball (C. C.) 117 Fed. 163; Gates v. Hester, 81 Ala. 357, I South. 848.

COMPULSORY, w. In ecclesiastical pro- cedure, a compulsory is a kind of writ to compel the attendance of a witness, to un- dergo examination. Pblllim. Eec. Law, 1258.

COMPULSORY, ad). Involuntary; forc- ed: coerced by legal process or by force of statute.

—Compulsory arbitration. That which takes place where the consent of one of the parties is enforced by statutory provisions. Wood v. Seattle, 23 Wash. 1, 62 Pac. 135, 52

L. R. A. 369.— Compulsory nonsuit. An in- voluntary nonsuit. See Nonsuit.— Compul- sory payment. One not made voluntarily, but exacted by duress, threats, the enforcement of legal process, or unconscionably taking advan- tage of another. Shaw v. Woodcock, 7 Bam. & 0. 73; Beckwith v. Frisbie, 32 Vt. 565; State v. Nelson, 41 Minn. 25, 42 N. W. 548, 4

L. R. A. 300: Lonergan v. Buford, 148 U. S. 581, 13 Sup. Ct. 684, 37 L. Ed. 569.— Compul- sory process. Process to compel the attend- ance in court of a person wanted there as a witness or otherwise; including not only the ordinary subpoena, but also a warrant of arrest or attachment if needed. Powers v. Com., 24 Ky. Law Rep. 1007, 70 S. W. 644 ; Graham v. State, 50 Ark. 161, 6 S. W. 721; State v. Nathaniel, 52 La. Ann. 558, 26 South. 1006.— Compulsory sale or purchase. A term sometimes used to characterize the transfer of title to property under the exercise of the pow- er of eminent domain. In re Barre Water Co., 62 Vt. 27, 20 Atl. 109, 9 L R. A. 195.

COMPURGATOR.. One of several neigh- bors of a person accused of a crime, or charged as a defendant in a civil action, who appeared and swore that they believed him on his oath. 3 Bl. Comm. 34L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COMPUTO.

Lat. To compute, reckon, or account. Used in the phrases insimul computassent, "they reckoned together,” (see Insimttl ;) plene computant, "he has fully accounted,” (see Plene ;) quod computet, “that he account," (see Quon Comtutet.)

5e apparatus — Not carried into the 5th edition (1979).

## COMPUTATION.

The act of comput- ing, numbering, reckoning, or estimating.

1 CONCESSION

The account or estimation of time by rule of law, as distinguished from any arbitrary construction of the parties. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## COMPUTUS.

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A writ to compel a guar- dian, bailiff, receiver, or accountant to yield up his accounts. It is founded on the stat- ute Westm. 2, c. 12 ; Reg. Orlg. 135.

5e apparatus — Not carried into the 5th edition (1979).

## COMTE.

Fr. A count or earl. In the ancient French law, the comte was an of- ficer having Jurisdiction over a particular district or territory, with functions partly military and partly Judicial.

5e apparatus — Not carried into the 5th edition (1979).

## CON BUENA PE.

In Spanish law. With (or in) good faith.

5e apparatus — Not carried into the 5th edition (1979).

## CONACRE.

In Irish practice. The pay- ment of wages in land, the rent being work- ed out in labor at a money valuation. Whar- ton.

Conatns quid sit, non defluitur in jure. 2 Bulst. 277. What an attempt is, is not defined in law.

CONOEAXi. To hide; secrete; withhold from the knowledge of others.

The word “conceal,” according to the best lexicographers, signifies to withhold or keep secret mental facts from another’s knowl- edge, as well as to hide or secrete physical objects from sight or observation. Gerry v. Dunham, 57 Me. 339.

— Concealed. The term "concealed” is not synonymous with “lying in wait" If a person conceals himself for the purpose of shooting an- other unawares, he is lying in wait ; but a per- son may, while concealed, shoot another with- out committing the crime of murder. People v. Miles, 55 Cal. 207. The term “concealed weap- ons" means weapons willfully or knowingly covered or kept from sight. Owen v. State, 3l Ala. 387.— Concealers. In old English law. Such as find out concealed lands ; that is, lands privily kept from the king by common persons having nothing to show for them. They are called “a troublesome, disturbant sort of men ; turbulent persons.” Cowell. — Concealment. The improper suppression or disguising of a fact, circumstance, or qualification which rests within the knowledge of one only of the parties to a contract, but which ought in fairness and good faith to be communicated to the other, whereby the party so concealing draws the oth- er into an engagement which he would not make but for his ignorance of the fact concealed. A neglect to communicate that which a party knows, and ought to communicate, is called a “concealment.” Civ. Code Cal. $ 2561. The terms “misrepresentation” and “concealment” have a known and definite meaning in the law of insurance. Misrepresentation is the state- ment of something as fact which is untrue in fact, and which the assured states, knowing it to be not true, with an intent to deceive the underwriter, or which he states positively as true, without knowing it to be true, and which has a tendency to mislead, such fact in either case being material to the risk. Concealment is the designed and intentional withholding of any fact material to the risk, which the assured, in honesty and good faith, ought to

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communicate to the underwriter; mere silence on the part of the assured, especially as to some matter of fact which he does not consider it important for

the underwriter to know, is not to be consider- ed as such concealment. If the fact so untruly stated or purposely suppressed is not material, that is, if the knowledge or ignorance of it would not naturally influence the judgment of the underwriter in making the contract, or in estimating the degree and character of the risk, or in fixing the rate of the premium, it is not a “misrepresentation” or "concealment,” within the clause of the conditions annexed to policies. Daniels v. Insurance Co., 12 Cush. (Hass.) 416, 59 Am. Dec. 192.

5e apparatus — Not carried into the 5th edition (1979).

## CONCEDES.

Fr. In French law. To grant See Concession.

5e apparatus — Not carried into the 5th edition (1979).

## CONCEDO.

Eat I grant A word used in old Anglo-Saxon grants, and in statutes merchant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONCEPTION.

In medical Jurispru- dence, the beginning of pregnancy, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## CONCEPTUM.

In the civil law. A theft (furtum) was called “conceptum," when the thing stolen was searched for, and found upon some person in the presence of witness- es. Inst 4, 1, 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore double.

Why: The thing stolen found in his hand — the Mosaic twin of furtum conceptum, with the double-restitution penalty attached. Genuine parallel, noted as such. (Book of the Covenant, the LORD's speech: red-letter.)

## CONCERNING, CONCERNED.

Relat- ing to ; pertaining to ; affecting ; involving ; being engaged in or taking part in. U. S. v. Fulkerson (D. C.) 74 Fed. 631; May v. Brown, 3 Barn. & C. J37 ; Ensworth v. Hol- ly, 33 Mo. 370; Miller v. Navigation Co., 32 W. Va. 46, 9 S. E. 57 ; U. S. v. Scott (C. C.) 74 Fed. 217; McDonald v. White, 130 111. 493, 22 N. E. 599.

5e apparatus — Not carried into the 5th edition (1979).

## CONCESSI.

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Eat. I have granted. At common law, in a feoffment or estate of in- heritance, this word does not imply a war- ranty ; It only creates a covenant in a lease for years. Co. T.itt. 384a. See Kinney v. Watts, 14 Wend. (N. Y.) 40; Koch v. Hustis, 113 Wis. 599, 87 N. W. 834; BurweU v. Jackson, 9 N. Y. 535.

5e apparatus — Not carried into the 5th edition (1979).

## CONCESSIMUS.

Lat We have grant- ed. A term used In conveyances, the effect of which was to create a Joint covenant on the part of the grantors.

5e apparatus — Not carried into the 5th edition (1979).

## CONCESSIO.

In old English law. A grant One of the old common assurances, or forms of conveyance.

Coneeuio per regent fieri debet de cer- titndine. 9 Coke, 40. A grant by the king ought to be made from certainty.

Coneeuio versus oonoedentem Iatam interpretationem habere debet. A grant ought to have a broad interpretation (to be liberally interpreted) against the grantor. Jenk. Cent. 279.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 12:7, KJV]**

Unto thy seed will I give this land.

Why: The archetypal grant — land conveyed by the grantor's word. The entry's concept at its most absolute. (The LORD speaking to Abram: red-letter.)

## CONCESSION.

A grant; ordinarily ap- plied to the grant of specific privileges by a government; French and Spanish grants in Eouisiana. See Western M. & M. Co. v. Pey- tona Coal Co., 8 W. Va. 446.

5e apparatus — Carried into the 5th edition (1979).

## CONCESSIT SOLVERE.

(He granted

and agreed to pay.) In English law. An ac- tion of debt upon a simple contract. It lies by cnstom In the mayor’s court, Loudon, and Bristol city court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONCESSOR.

In old English law. A grantor.

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# O

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## OONCESSUM.

Accorded ; conceded. This term, frequently used In the old reports, sig- nifies that the court admitted or assented to a point or proposition made on the argu- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# C

## CONCESSTJS.

A grantee.

5e apparatus — Not carried into the 5th edition (1979).

## CONC1LIABULUM.

A council house. '

5e apparatus — Not carried into the 5th edition (1979).

## CONCILIATION.

In French law. The formality to which intending litigants are subjected In cases brought before the juge de pale. The judge convenes the parties and endeavors to reconcile them. Should he not succeed, the case proceeds. In criminal and commercial cases, the preliminary of concili- ation does not take place. Arg. Fr. Merc. Law, 662.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:9, KJV]**

Blessed are the peacemakers: for they shall be called the children of God.

Why: Conciliation is institutionalized peacemaking — the judge's office as peacemaker between litigants. The verse blesses the reconciling function the entry describes. (Jesus' words: red-letter.)

## CONCILIUM.

Lat. A council. Also ar- gument in a cause, or the sitting of the court to hear argument; a day allowed to a de- fendant to present his argument ; an impar- lance.

— Concilium ordinarium. In Anglo-Norman times. An executive and residuary judicial com- mittee of the Aula Regis, ( q . t;.)— Concilium regia. An ancient English tribunal, existing during the reigns of Edward I. and Edward II., to which was referred cases of extraordinary difficulty. Co. Litt. 304.

5e apparatus — Not carried into the 5th edition (1979).

## CONCIONATOR.

In old records. A common council man; a freeman called to a legislative hall or assembly. Cowell.

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## CONCLUDE.

To finish ; determine ; to estop; to prevent

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## CONCLUDED.

Ended ; determined ; es- topped ; prevented from.

5e apparatus — Carried into the 5th edition (1979).

## CONCLUSION.

The end; the termina- tion; the act of finishing or bringing to a close. The conclusion of a declaration or complaint Is all that part which follows the statement of the plaintiff's cause of action. The conclusion of a plea is its final clause, in which the defendant either “puts himself upon the country” (where a material aver- ment of the declaration is traversed and is- sue tendered) or offers a verification, which is proper where new matter Is introduced. State v. Waters, 1 Mo. App. 7.

In trial practice. It signifies making' the final or concluding address to the jury or the court. This is, in general, the privilege of the party who has to sustain the burden of proof.

Conclusion also denotes a bar or estoppel ; the consequence, as respects the individual, of a judgment upon the subject-matter, or of his confession of a matter or thing which the law thenceforth forbids him to deny.

— Conclusion against the form of the statute. The proper form for the conclusion of an indictment for an offense created by statute is the technical phrase “against the form of the statute in such case made and pro- vided;” or, in Latin, contra formam statuti. — Conclusion of fact. An inference drawn from the subordinate or evidentiary facts.— Conclusion of law. Within the rule that pleadings should contain only facts, and not conclusions of law, this means a proposition not arrived at by any process of natural rea- soning from a fact or combination of facts stated, but by the application of the artificial rules of law to the facts pleaded. Levins v. Uovegno, 71 Cal. 273, 12 Pac. 161; Iron Co. v. Vandervort, 164 Pa. 572, 30 Atl. 491: Clark v. Railway Co., 28 Minn. 69, 9 N. W. 75.— Conclusion to the country. In pleading. The tender of an issue to be tried by jury. Steph. Pl. 230.

5e apparatus — Carried into the 5th edition (1979).

## CONCLUSIVE.

Shutting up a matter; shutting out all further evidence; not ad- mitting of explanation or contradiction ; putting an end to inquiry; final; decisive. Hoadley v. Hammond, 63 Iowa, 1599, 19 N.

W. 794; Joslyn v. Rockwell, 59 Hun, 129, 13 N. V. Supp. 311; Appeal of BIxler, 59 Cal. 560.

—Conclusive evidence. See Evidence— Conclusive presumption. See Pbesump- TION.

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## CONCORD.

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In the old process of levy- ing a fine of lands, the concord was an agreement between the parties (real or feign- ed) in which the deforciant (or he who keeps the other out of possession) acknowledges that the lands in question are the right of complainant; and, from the acknowledg- ment or admission of right thus made, the party who levies the fine is called the “cog- nizor,” and the person to whom it is levied the “cognizee.” 2 Bl. Comm. 350.

The term also denotes an agreement be- tween two persons, one of whom hga a right of action against the other, settling what amends shall be made for the breach or wrong; a compromise or an accord.

In old practice. An agreement between two or more, upon a trespass committed, by way of amends or satisfaction for it. Plowd. 5, 6, &

Concordare leges legibus est optimal interpretandi modus. To make laws agree with laws is the best mode of Interpreting them. Halk. Max. 70.

5e apparatus — Carried into the 5th edition (1979).

## CONCORDAT.

In public law. A com- pact or convention between two or more in- dependent governments.

An agreement made by a temporal sover- eign with the pope, relative to ecclesiastical matters.

In French law. A compromise effected by a bankrupt with his creditors, by virtue

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of which he engages to pay within a certain time a certain proportion of his debts, and by which the creditors agree to discharge the whole of their claims in consideration of the same. Arg. Fr. Merc. Law, 553.

5e apparatus — Carried into the 5th edition (1979).

## CONCORDIA.

Lat In old English law. An agreement, or concord. Fletn, lib. 5, c.

3, § 5. The agreement or unanimity of a jury. Compettere ad concordiam. Fleta, lib.

4, c. 9, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## CONCORDIA DISCORD ANTIUM / CANONUU.

The harmony of the discord* ant canons. A collection of ecclesiastical constitutions made, by Gratlan, an Italian monk, A. D. 1151; more commonly known by the name of “ Decretum Qratiani.”

Concordia parvus res erescnnt et opu- lentim lltes. 4 Inst. 74. Small means in- crease by concord and litigations by opu- lence.

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## CONCUBARIA.

A fold, pen, or place where cattle lie. Cowell.

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## CONCTJBEANT.

Lying together, as cat- tle.

5e apparatus — Not carried into the 5th edition (1979).

## CONCUBINAGE.

A species of loose or informal marriage which took place among the ancients, and which is yet in use in some countries. See Concvbinatds.

The act or practice of cohabiting, in sex- ual commerce, without the authority of law or a legal marriage. State v. Adams, 179 Mo. 334, 78 S. W. 583; State v. Overstreet, 43 Kan. 299, 23 Pac. 572 ; Henderson v. Peo- ple, 124 111. 607, 17 N. B. 68, 7 Am. St Rep. 391.

An exception against a woman suing for dowrer, on the ground that she was the con- cubine, and not the wife, of the man of whose land she seeks to he endowed. Britt c. 107.

5e apparatus — Not carried into the 5th edition (1979).

## CONCUBINATU8.

In Roman law. An informal, unsanctioned, or “natural” mar- riage, as contradistinguished from the jutta nuptial, or juatum matrimonium, the civil marriage.

5e apparatus — Not carried into the 5th edition (1979).

## CONCUBINE.

(1) A woman who co- habits with a man to whom she is not mar- ried. (2) A sort of inferior wife, among the Romans, upon whom the husband did not confer his rank or quality.

5e apparatus — Not carried into the 5th edition (1979).

## CONCUR.

To agree; accord; consent In the practice of appellate courts, a “con- curring opinion” is one filed by one of the judges or justices, in which he agrees with the conclusions or the result of another opin- ion filed in the case (which may be either the opinion of the court or a dissenting opin- ion) though he states separately his views of the case or his reasons for so concurring.

In Louisiana law. To join with other

claimants in presenting a demand against an Insolvent estate.

5e apparatus — Carried into the 5th edition (1979).

## CONCURATOR.

In the civil law. A joint or co-curator, or guardian.

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## CONCURRENCE.

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In French law. The possession, by two or more persons, of equal rights or privileges over the same subject- matter.

— Concurrence deloyale. A term of the French law nearly equivalent to “unfair trade competition;" and used in relation to the in- fringement of rights secured by trade-marks, etc. It signifies a dishonest, perfidious, or treacherous rivalry in trade, or any manoeuvre calculated to prejudice the good will of a business or the value of the name of a property or its eredit or renown with the public, to the in- jury of a business competitor. Simmons Medi- cine Co. v. Mansfield Drug Co., 93 Tenn. 84, 23

S. W. 165.

5e apparatus — Carried into the 5th edition (1979).

**CONCURRENT.**

Having the same au- thority; acting in conjunction; agreeing in the same act; contributing to the same eveut ; contemporaneous.

As to concurrent “Covenants,” “Jurisdic- tion,” “Insurance,” “Lease,” “Lien,” and “Writs,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

# O

**OONGURSO.**

In the law of Louisiana, the name of a suit or remedy to enable cred- itors to enforce their claims against an in- solvent or failing debtor. Schroeder v. Nicholson, 2 La. 355.

5e apparatus — Not carried into the 5th edition (1979).

**OONCURSUS.**

In the civil law. (1) A running together; a collision, as concur gu» creditorum, a conflict among creditors. (2) A concurrence, or meeting, as concurgus ac- tionum, concurrence of actions.

5e apparatus — Not carried into the 5th edition (1979).

# C

**CONCUSS.**

In Scotch law. To coerce.

5e apparatus — Not carried into the 5th edition (1979).

**CONCUSSIO.**

In the civil law. The of- fense of extortion by threats of violence. Dig. 47, 13.

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## CONCUSSION.

In the olvil law. The

unlawful forcing of another by threats of violence to give something of value. It dif- fers from robbery, in this: That in robbery the thing is taken by force, while in con- cussion it is obtained by threatened violence. Heinec. Elem. f 1071. •

In medical jurisprudence. Concussion of the brain is a Jarring of the brain sub- stance, by a fall, blow, or other external in- jury, without laceration of its tissue, or with only microscopical laceration. May- nard v. Railroad Co., 43 Or. 63, 72 Pac. 590.

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**[Humanity] — Humanity / Fiction & Film**

**[Francis Ford Coppola, The Godfather, 1972]**

Don Corleone's working method for unlawful forcing by threats: "I'm gonna make him an offer he can't refuse."

Why: Entry defines concussion as the unlawful forcing of another by threats of violence to give something of value. The verbatim line (certain, AFI-ranked) precisely names the shakedown; a genuine illumination.

## CONDEDIT.

In ecclesiastical law. The name of a plea entered by a party to a libel filed in the ecclesiastical court, in which It is pleaded that the deceased made the will which is the subject of the suit and that he was of sound mind. 2 Eng. Ecc. R. 438; 6 Eng. Ecc. R. 431.

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## CONDEMN.

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**[Scripture] — Scripture**

**[John 3:18, KJV]**

He that believeth on him is not condemned: but he that believeth not is condemned already, because he hath not believed in the name of the only begotten Son of God.

Why: The verdict of guilt rendered — 'condemned already' is the adjudication of guilt in its most absolute form; the juridical structure (a finding of guilt with its ground stated) matches the entry's first sense. (Jesus s...

## CONDITION.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## CONDEMN.

To find or adjudge guilty. 3 Leon. 68. To adjudge or sentence. 3 Bl. Comm. 291. To adjudge (as an admiralty court) that a vessel is a prize, or that she is unfit for service. 1 Kent, Comm. 102; 5 Bsp. 65. To set apart or expropriate prop- erty for public use, in the exercise

of the power of eminent domain. Wulzen v. San Francisco, 101 Cal. 15, 35 Pac. 353, 40 Am. St Bep. 17.

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## CONDEMNATION.

In. admiralty law.

The Judgment or sentence of a court having Jurisdiction and acting i» rem, by which (1) it is declared that a vessel which has been captured at sea as a prize was lawfully so seized and Is liable to be treated as prize ; or (2) that property which has been seized for an alleged violation of the revenue laws, neutrality laws, navigation laws, etc., was lawfully so seized, and is, for such cause, forfeited to the government; or (3) that the vessel which is the subject of inquiry is un- fit and unsafe for navigation. Gallagher ▼. Murray, 9 Fed. Cas. 1087.

In the civil law. A sentence or Judg- ment which condemns some one to do, to give, or to pay something, or which declares that his claim or pretensions are unfounded. Lockwood v. Saffold, 1 Ga. 72.

In real-property law. The process by which property of a private owner is taken for public use, without his consent, but up- on the award and payment of Just compen- sation, being in the nature of a forced sale. Atlanta, K. & N. K. Co. v. Southern By. Co., 131 Fed. 606, 66 C. C. A. 601; Venable v. Kailway Co., 112 Mo. 103, 20 S. W. 493, 18

L. B. A. 68; In re Bugheimer (D. C.) 36 Fed. 369.

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## CONDEMNATION MONET.

In prac- tice. The damages which the party falling in an action is adjudged or condemned to pay; sometimes simply called the “condem- nation."

As used in an appeal-bond, this phrase means the damages which should be award- ed against the appellant by the Judgment of the court It does not embrace damages not Included in the Judgment. Doe v. Daniels, 6 .Blackf. (Ind.) 8: Hayes v. Weaver, 61 Ohio St. 55, 55 N. E. 172 ; Maloney v. John- son-McLean Co., 72 Neb. 340, 100 N. W. 424.

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## CONDESCENDENCE.

In the Scotch law. A part of the proceedings in a cause, setting forth the facts of the case on the part of the pursuer' or plaintiff.

5e apparatus — Not carried into the 5th edition (1979).

## CONDICTIO.

In Koman law. A general term for actions of a personal nature, found- ed upon an obligation to give or do a cer- tain and defined thing or service. It is dis- tinguished from vindicatio rei, which is an action to vindicate one’s right of property in a thing by regaining (or retaining) possession of it against the adverse claim of the other party.

— Condictio eerti. An action which lies up- on a promise to do a thing, where such promise

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or stipulation is certain, (at certa tit atipulatio.) Inst. 3, 16, pr.; Id. 3, 15, pr. ; Dig. 12, 1; Bract, fol. 1036. — Condictio ex lege* An ac- tion arising where the law gave a remedy, but provided no appropriate form of action. Cal- vin.— Condictio indebitati. An action which lay to recover anything which the plaintiff had given or paid to the defendant, by mistake, and which he was not bound to give or pay, either in fact or in, law.— Condictio rei fnrtivse. Ap action which lay to recover a thing stolen, against the thief himself, or his heir. Inst 4, 1, 19. — Condictio sine cams. An action which lay in favor of a person who had given or promised a thing without consideration, (causa.) Dig. 12, 7; Cod. 4, 9.

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## CONDITIO.

Lat A condition.

Conditio benefieinlia, qnss stntnna oon- ' strait, benignd seonndum verbonun ln- tentionem eat interpret, an da | odloam an- tem, qnss atatnm deatroit, strict* secun- dum verborum proprietatem nociplendn. 8 Coke, 90. A beneficial condition, which creates an estate, ought to be construed fa- vorably, according to the Intention of the words; but a condition which destroys an estate Is odious, and ought to be construed strictly according to the letter of the words.

Conditio dicitnr, cam qaid in cas am incertam qul potest tendere ad ease ant non ease, eosfertnr. Co. Litt. 201. It is called a “condition," when something is giv- en on an uncertain event, which may or may not come Into existence.

Conditio illicita babetnr pro non ad- jectft. An unlawful condition Is deemed as not annexed.

Conditio prsecedens adimpleri debet prins qnam sequatur effeotns. Co. Litt. 201. A condition precedent must be fulfilled before the effect can follow.

5e apparatus — Not carried into the 5th edition (1979).

## CONDITION.

In the civil law. The

rank, situation, or degree of a particular person In some one of the different orders of society.

An agreement or stipulation in regard to some uncertain future event, not of the es- sential nature of tbe transaction, but an- nexed to it by the parties, providing for a change or modification of tbeir legal rela- tions upon its occurrence. Mackeld. Bom. Law, | 184.

Classification. In the civil law, conditions are of the following several kinds:

The casual condition is that which depends on chnnee. and is in no way in the power either of the creditor or of the debtor. Civ. Code La. art. 2023.

A mixed condition is one that depends at the same time on the will of one of the parties and on the will of a third -person, or on the will of one of the parties and also on a casual event. Civ. Code La. art 2025.

The potestative condition ia that wbiclt makes

the execution of the agreement depend on an event which it is in the power of the one or the other of the contracting parties to bring about or to hinder. Civ. Code La. art 2024.

A resolutory or dissolving condition ia that which, when accomplished, operates the revocation of the obligation, placing matters in the same state as though the obligation had not existed. It does not suspend the execution of the obligation. It only obliges the creditor to restore what he has received in case the event provided for in the condition takes place. Civ. Code La. art. 2045 ; Moss v. Smoker, 2 La. Ann. 991.

A suspensive condition is that which depends, either on a future and uncertain event, or on an event which has actually taken place, with- out its being yet known to the parties. In the former case, the obligation cannot be executed till after the event; in the latter, the obligation has its effect from the day on which it was contracted, but it cannot be enforced until the event be known. Civ. Code La. art 2043 : New Orleans v. Railroad Co.. 1T1 IT. S. 312, IS Sup. Ct. 875, 43 L. Ed. 178; Moss v. Smoker, 2 La. Ann. 991.

In French law. In French law, the fol- lowing peculiar distinctions are mnde: (1) A condition is casuellc when it depends on a chance or hazard; (2) a condition Is potes- tative when it depends on the accomplish- ment of something which is in the power of the party to accomplish; (3) a condition is mixte when It depends partly on the will of the party and partly on the will of oth- ers ; (4) a condition is suspensive when it is a future and uncertain event, or present but unknown event, upon which an obligation takes or falls to take effect; (5) a condition is resolutoire when it is the event which un- does an obligation which has already had effect as such. Brown.

In common law. The rank, situation, or degree of a particular person in some one. of the different orders of society; or his stat- us or situation, considered as a Jurkliclal person, 'arising from positive law or the in- stitutions of society. Thill ▼. Pohlman, 76 Iowa, 638, 41 N. W. 385.

A clause in a contract or agreement which has for its object to suspend, rescind, or modify the principal obligation, or, in case of n will, to suspend, revoke, or modify the devise or bequest. Towle v. Remsen, 70 N.

Y. 303.

A modus or quality annexed by him that hath an estate, or interest or right to the same, whereby an estate, etc., may either be defeated, enlarged, or created upon an un- certain event. Co. Lltt. 201 a.

A qualification or restriction annexed to a conveyance of lands, whereby it is provided that in case a particular event does or does not happen, or in case the grantor or gran- tee does or omits to do a particular act, an estate shall commence, be enlarged, or be defeated. Heaston v. Randolph County, 20 Ind. 398; Cooper v. Green, 28 Ark. 54; State v. Board of Public Works, 42 Ohio St 615 ; Selden v. Pringle, 17 Barb. (N. Y.) 465.

Classification. The different kinds of con- ditions known to the common law may be ar- ranged and described as follows;

They are either express or implied, the form- er when incorporated in express terms in the deed, contract, lease, or grant ; the latter, when inferred or presumed by law, from the nature of the transaction or the conduct of the par- ties, to have been tacitly understood between them as a part of the agreement, though not expressly mentioned. 2 Crabb, Real Prop. p. 792 ; Bract, fol. 47 ; Civ. Code La. art 2026; Raley v. Umatilla County, 15 Or. 172, 13 Pac. 890, 3 Am. St. Rep. 142. Express and implied conditions are also called by the older writers, respectively, conditions in deed (or in fact, the Law French term being conditions en fait) and conditions in late. Co. Litt. 201o.

They are possible or impossible ; the former when they admit of performance in the ordinary course of events; the latter when it is con- trary to the course of nature or human limita- tions that they should ever be performed.

They are lawful or unlawful; the former when their character is not in violation of any rule, principle, or policy of law ; the latter when they are such as the law will not allow to be made.

They are consistent or repugnant; the form- er when they are in harmony and concord with the other parts of the transaction; the latter when they contradict, annul, or neutralize the main purpose of the contract. Repugnant con- ditions are also called “insensible."

They are affirmative or negative; the former being a condition which consists in doing a thing; as provided that the lessee shall pay rent, etc., and the latter being a condition which consists in not doing a thing ; as provided that the lessee shall not alien, etc. Shep. Touch. 118.

They are precedent or subsequent. A con- dition precedent is one which must happen or be performed before the estate to which it is annexed can vest or be enlarged; or it is one which is to be performed before some right de- pendent thereon accrues, or some, act dependent thereon is performed. Towle v. Remsen, 76 N.

Y. 309; .Jones v. U. S., 96 U. S. 26. 24 L. Ed. 644; Redman v. Insurance Co., 49 Wis. 431. 4 N. W. 591 : Beatty’s Estate v. Western College, 177 111. 280, 52 N. E. 432, 42 L. R. A. 797, 69 Am. St. Rep. 242; Warner v. Bennett, 31 Conn. 475 ; Blean v. Messenger, 33 N. J. Law, 503. A condition subsequent is one an- nexed to an estate already vested, by the per- formance of which such estate is kept and con- tinued. and by the failure or non-performance of which it is- defeated ; or it is a condition referring to a future event, upon the happen- ing of which the obligation becomes no longer binding upon the other party, if he chooses to avail himself of the condition. Co. Litt. 201; 2 Bl. Comm. 154; Civ. Code Cal. jj 1436; Code Ga. § 2722 ; Goff v. Pensenhafer, 190 111. 200. 60 N. E. 110: Moran v. Stewart, 173 Mo. 207. 73 S. W. 177 ; Hague v. Ahrens, 53 Fed. 58. 3 C. C. A. 426: Towle v. Remsen, 70

N. Y. 309 ; phapin v. School Disk, 35 N. H. 450; Blanchard v. Railroad Co., 31 Mich. 49. 18 Am. Rep. 142; Cooper v. Green, ‘28 Ark. 54.

Conditions may also be positive (requiring that a specified event shall happen or an act be done) and restrictive or negative, the latter being such as impose an obligation not to do a

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particular thing, as, that a lessee shall not alien or sub-let or commit waste, or the like. Shep. Touch. 118.

They may be single, copulative, or disjunc- tive. 'Those of the first kind require the performance of one specified thing only; those of the second kind require the performance of divers acts or things; those of the third kind require the performance of one of several things. Shep. Touch. 118.

Conditions may also be independent, depend- ent, or mutual. They belong to the first class when each of the two conditions must be per- formed without any reference to the other; to

the second class when the performance of one condition is not obligatory until the actual performance of the other ; and to the third class when neither party need perform his condition unless the other is ready and willing to perform his, or, in other words, when the mutual covenants go to the whole consideration on both sides and each is precedent to the oth- er. Hoggins v. Daley, 99 Fed. 609, 40 C. C.

A. 12, 48 L. R. A. 320.

The following varieties may also be noted: A condition collateral is one requiring the performance of a collateral act having no necessary relation to the main subject of the agreement. A compulsory condition is one Which expressly requires a thing to be done, as, that a lessee shall pay a specified sum of money on a certain day or his lease shall be void. Shep. Touch. 118. Concurrent conditions are those which are mutually dependent and are to be performed at the same time. Civ. Code Cal. | 1437. A condition inherent is one annexed to the rent reserved out of the land whereof the estate is made, or rather, to the estate in the land, in respect of rent. Shep. Touch. 118.

Synonyms distinguished. A “condition’’ is to be distinguished from a limitation, in that the latter may be to or for the benefit of a stranger, who may then take advantage of its determination, while only the grantor, or those who stand in his place, can take advantage of a condition, (Hoselton v. Hosel- ton, 166 Mo. 182, 65 S. W. 1005 ; Stearns v. Gofrey, 16 Me. 158;) and in that a limita- tion ends the estate without entry or claim, which is not true of a condition. It also differs from a conditional limitation; for in the latter the estate is limited over to a third person, while in case of a simple con- dition it reverts to the grantor, or his heirs or devisees, (Church v. Grant, 3 Gray [Mass.) 147, 63 Am. Dec. 725.) It differs also from a covenant, which can be made by either grantor or grantee, while only the grantor can make a condition, (Co. Litt. 70.) A charge Is a devise of land with a bequest out of the subject-matter, and a charge up- on the devisee personally, in respect of the estate devised, gives him an estate on con- dition. A condition also differs from a re- mainder; for, while the former may operate to defeat the estate before its natural ter- mination. the latter cannot take effect until the completion of the preceding estate.

5e apparatus — Carried into the 5th edition (1979).

## CONDITIONAL.

That which is depend- ent upon or granted subject to a condition.

— Conditional creditor. In the civil law. A creditor having a future right of action, or hav- ing a right of action in expectancy. Dig. 50, 16, 54— Conditional stipulation. In the civil law. A stipulation to do a thing upon con- dition, as the happening of any event.

As to conditional “Acceptance,” “Appear- ance,” “Bequest,” “Contract,” “Delivery,” "Devise,” “Fee,” “Guaranty," “Judgment,” “Legacy,” “Limitation," “Obligation,” “Par- don,” “Privilege,” and “Sale,” see those ti- tles.

Gonditlones quselibet odioste; maxims •item contra matrimonium ot commerdam. Any conditions are odious, but es- Bl.Law Dict.(2d Ed.)— 16

pecially those which are against [in re straint of) marriage and commerce. Lofft, Appendix, 644.

5e apparatus — Carried into the 5th edition (1979).

## CONDITIONS OF SALE.

The terms upon which sales are made at auction ; usual- ly written or printed and exposed in the auc- tion room at the time of sale.

5e apparatus — Carried into the 5th edition (1979).

## CONDOMINIA.

In the civil law. Co- ownerships or limited ownerships, such as emphyteusis, superficies, pignus, hypotheca, ususfructus, usus, and habitatio. These were more than mere jura in re aliend, being por- tion of the dominium itself, although they are commonly distinguished from the dominium strictly so called. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CONDONACION.

In Spanish law. The remission of a debt, either expressly or tacit- ly.

5e apparatus — Not carried into the 5th edition (1979).

## CONDONATION.

The conditional re- mission or forgiveness, by one of the married parties, of a matrimonial offense committed by tbe other, and which would constitute a cause of divorce; the condition being that the offense shall not be repeated. See Pain v. Pain, 37 Mo. App. 115; Betz v. Betz, 25

N. Y. Super. Ct 696; Thomson v. Thomson, 121 Cal. 11, 53 Pac. 403; Harnett v. Harnett, 55 Iowa, 45, 7 N. W. 394; Eggerth v. Eg- gerth, 15 Or. 626, 16 Pac. 650; Turnbull v. Turnbull, 23 Ark. 615; Odom v. Odom, 36 Ga. 318; Poison v. Poison, 140 Ind. 310, 39

N. E. 498.

The term is also sometimes applied to forgiveness of a past wrong, fault, injury, or breach of duty in other relations, as, for example, in that of master and servant. Lea- therberry v. Odell (C. C.) 7 Fed. 648.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 3:13, KJV]**

Forbearing one another, and forgiving one another, if any man have a quarrel against any: even as Christ forgave you, so also do ye.

Why: Condonation is forgiveness of an offense between parties; the verse prescribes mutual forgiveness grounded in Christ's forgiveness — the moral form of the legal act. (Apostolic: no flag.)

## CONDONE.

To make condonation of.

5e apparatus — Not carried into the 5th edition (1979).

## CONDUCT MONET.

In English prac- tice. Money paM to a witness who has been subpoenaed on a trial, sufficient to defray tbe reasonable expenses of going to, staying at, and returning from tbe place of trial. Lush, Pr. 460; Archb. New Pr. 639.

5e apparatus — Not carried into the 5th edition (1979).

## CONDUCTI ACTIO.

In the civil law. An action which the hirer ( conductor ) ot a thing might have against the letter, (locator.) Inst 3, 25, pr. 2.

5e apparatus — Not carried into the 5th edition (1979).

## CONDUCTIO.

In the civil law. A hir- ing. Used generally in connection with the term locatio, a letting. Locatio ct conductio, (sometimes united as a .compound word, “lo- catio-conductio,") a letting and hiring. Inst. 3, 25; Bract fol. 62, a 28; Story, Baiim. §§ 8, 368.

5e apparatus — Not carried into the 5th edition (1979).

## CONDUCTOR.

In the civil law. A hirer.

5e apparatus — Carried into the 5th edition (1979).

## CONDUCTOR OPERARUM.

In the

civil iaw. A person who engages to perform a piece of work for another, at a stated price.

CONDUCTUS, A thing hired.

5e apparatus — Not carried into the 5th edition (1979).

## CONE AND KEY.

In old English law. A woman at fourteen or fifteen years of age may take charge of her house and receivo cone and Key; that is, keep the accounts and keys. Cowell. Said by Lord Coke to be cover and keys, meaning that at that age a woman knew what in her house should be kept under lock and key. 2 Inst 203.

5e apparatus — Carried into the 5th edition (1979).

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## CONFARREATIO.

In Roman law. A sacrificial rite resorted to by marrying per- sons of high patrician or priestly degree, for the purpose of clothing the husband with the menus over his wife; the civil modes of ef- fecting the same thing being coemptio, (form- al,) and tie us mulieris, (Informal.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CONFECTIO.

The making and comple- tion of a written instrument 5 Coke, 1.

5e apparatus — Not carried into the 5th edition (1979).

## CONFEDERACY.

Xa criminal law.

The association or banding together of two or more persons for the purpose of commit- ting an act or furthering an enterprise which is forbidden by law, or which, though law- ful In itself, becomes unlawful when made the object of the confederacy. State v. Crow- ley, 41 Wis. 284, 22 Am. Rep. 719; Watson v. Navigation Co., 62. How. Prac. (N. Y.) 363. Conspiracy is a more technical term for this offense.

The act of two or more who combine to- gether to do any damage or injury to an- other, or to do any unlawful net. Jacob. See Watson v. Navigation Co., 52 How. Prac. (N. X.) 353; State v. Crowley, 41 Wis. 284, 22 Am. Rep. 719.

Xn equity pleading. An improper com- bination alleged to have been entered into between the defendants to a bill in equity.

In international law. A league or agree- ment between two or more Independent states whereby they unite for their mutual welfare and the furtherance of their common aims. The term may apply to a union so formed for a temporary or limited purpose, as in the case of an offensive and defensive alli- ance ; but it is more commonly used to de- note that species of political connection be- tween two or more independent states by which a central government is created, in- vested with certain powers of sovereignty, (mostly external.) and acting upon the sev- eral component states as its units, which, however, retain their sovereign powers for domestic purposes and some others. See Fedebax, Govebnment.

5e apparatus — Carried into the 5th edition (1979).

## CONFEDERATION.

A league or com- pact for mutual support, particularly of princes, nations, or states. Such was the colonial government during the Revolution.

—Articles of Confederation. The name

of the instrument embodying the compact made between the thirteen original states of the Un- ion, before the adoption of the present constitu- tion.

5e apparatus — Carried into the 5th edition (1979).

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## CONFERENCE.

A meeting of several persons for deliberation, for the interchange of opinion, or for the removal of differences or disputes. Thus, a meeting between a counsel and solicitor to advise on the cause of their client

In the practice of legislative bodies, when the two houses cannot agree upon a pending measure, each appoints a committee of “con- ference,” and the committees meet and con- sult together for the purpose of removing differences, harmonizing conflicting views, and arranging a compromise which will be accepted by both houses.

In International law. A personal meet- ing between the diplomatic agents of two or more powers, for the purpose of making statements and explanations that will obvi- ate the delay and difficulty attending the more formal conduct of negotiations.

In French law. A concordance or iden- tity between two laws or two systems of laws.

5e apparatus — Carried into the 5th edition (1979).

## CONFESS.

To admit the truth of a charge or accusation. Usually spoken of charges of tortious or criminal conduct

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Raskolnikov's admission — first to Sonya, then to the police — of the murders, the moral climax of the novel: the voluntary acknowledgment of guilt. (paraphrase)

Why: Entry defines confess as admitting the truth of a charge. Raskolnikov's confession is the set-piece criminal confession of world fiction; paraphrase marked.

## CONFESSIO.

Let A confession. Con- fessio tn fudicio, a confession made in or be- fore a court.

Confesslo facta In jo dido omul pro- batlone major est. A confession made in court is of greater effect than any proof. Jenk. Cent. 102.

5e apparatus — Not carried into the 5th edition (1979).

## CONFESSION.

In criminal law. A vol- untary statement made by a person charged with the commission of a crime or misde- meanor, communicated to another person, wherein he acknowledges himself to be guilty of the offense charged, and discloses the circumstances of the act or the share and participation which he had in it. Spicer v. Com. (Ky.) 51 S. W. 802; People v. Parton, 49 Cal. 637; Lee v. State, 102 Ga. 221. 29

S. B. 264; State v. Heldenrelch, 29 Or. 381, 45 Pac. 755.

Also the act of a prisoner, when arraigned for a crime or misdemeanor, in acknowledg-* lng and avowing that he is guilty of the offense charged.

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Classification. Confessions are divided in- to judicial and extrajudicial. The former are Buch as are made before a magistrate or court in the due course of legal proceedings, while the latter are such as are made by a party else- where than in court or before a magistrate. Speer v. State, 4 Tex. App. 479. An implied confession is where the defendant, in a case not capital, does not plead guilty but indirectly admits his guilt by placing himself at the mercy of the court and asking for a light sentence. 2 Hawk. P. C. p. 409 ; State v. Conway, 20

R. I. 270, 38 Atl. 606. An indirect confession is one inferred from the conduct of the defend- ant State v. Miller, 9 Iloust. (Del.) 564. 32 Atl. 137. A naked confession is an admission of the guilt of the party, but which is not sup- ported by any evidence of the commission of the crime. A relative confession, in the older eriminal law of England, “Is where the accused con- fesseth and appealeth others thereof, to be- come an approver," (2 Hale, P. C. c. 29,) or in other words to “turn king's evidence.” This is now obsolete, but something like it is practiced in modern law, where one of the persons accus- ed or supposed to be involved in a crime is put on the witness stand under an Implied promise of pardon. Com. v. Knapp, 10 Pick. (Mass.) 477; 20 Am. Dec. 534; State v. Willis, 71 Conn. 293, 41 Atl. 820. A simple confession Is merely a plea of guilty. State v. Willis, 71 Oonn. 293, 41 Atl. 820: Bram v. TJ. S., 168

V. S. 532. 18 Sun. Ct. 183, 42 L. Ed. 568. A voluntary confession is one made spontaneous- ly by a person accused of crime, free from the influence of any extraneous disturbing cause, and in particular, not influenced, or extorted by vio- lence, threats, or promises. State v. Clifford, 86 Iowa, 550, 53 N. W. 299. 41 Am. St. Rep. 518; Roesel v. State, 62 N. J. Law, 216. 41 Atl. 408 ; State v. Alexander, 109 La. 557, 33 South. 600: Com. v. Sego, 125 Mass. 213; Bullock v. State, 65 N. J. Law, 557, 47 Atl 62. 86 Am. St. Rep. 668; Colburn v. Groton, 6G N. H. 151, 28 Atl. 95, 22 D R. A. 763.

— Confession and avoidance. A plea in con- fession and avoidance is one which avows and confesses the troth of the averments of fact in the declaration, either expressly or by implica- tion, but then proceeds to allege new matter which tends to deprive the facts admitted of their ordinary legal effect, or to obviate, neu- tralise, or avoid them. — Confession of de- fense. In English practice. Where defendant alleges a ground of defense arising since the commencement of the action, the plaintiff may deliver confession of such defense and sign judg- ment for his costs up to the time of such plead- ing. unless it be otherwise ordered. Jud. Act 1875, Ord. XX, r. 3.— Confession of judg- ment. The act of a debtor in permitting judg- ment to be entered against him by his creditor, for a stipulated sum, by a written statement to that effect or by warrant of attorney, without the institution of legal proceedings of any kind. —Confessing error. A plea to an assignment of error, admitting the same.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Miranda v. Arizona, 384 U.S. 436 (1966)]**

The entry defines a criminal confession as a voluntary statement acknowledging guilt and classifies

confessions as judicial or extrajudicial; the landmark rule on the admissibility of confessions obtained in custodial interrogation is Miranda.

Why: The entry states what a confession is but not the operative admissibility rule for the custodial statements it describes; Miranda — requiring warnings and waiver before custodial-interrogation statements are admissibl...

**[Scripture] — Scripture**

**[Joshua 7:19, KJV]**

And Joshua said unto Achan, My son, give, I pray thee, glory to the LORD God of Israel, and make confession unto him; and tell me now what thou hast done; hide it not from me.

Why: A confession of a crime (Achan's theft) exacted before judgment — the judicial confession the entry defines, in its oldest courtroom. (Joshua speaking: no flag.)

**[Humanity] — Humanity / Fiction & Film**

**[Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Raskolnikov's voluntary statement of the murders — first to Sonya, then to the police — dramatizing confession as the turning point from guilt to atonement. (paraphrase)

Why: Entry defines confession in criminal law as a voluntary statement by a person charged with a crime. Same genuine link as CONFESS, with the note angled to the legal definition; paraphrase marked.

## CONFESSO, BELL TAKEN PRO.

In

equity practice. An order which the court of chancery makes when the defendant £oes not file an answer, that the plaintiff may take such a decree as the case made by his bill warrants. 1

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONFESSOR.

An ecclesiastic who re- ceives auricular confessions of sins from per- sons under his spiritual charge, and pro- nounces absolution upon them. The secrets of the confessional are not privileged com- munications at common law, but this has been changed by statute in some states. See 1 Greenl. Ev. If 247, 248.

5e apparatus — Carried into the 5th edition (1979).

## CONFESSORIA ACTIO.

Lat In the

civil law. An action for enforcing a servi- tude. Mackeld. Rom. Law, i 324.

Confessna in jndicio pro jndicato habe- tmr, et quodmmmodo ana aententlA damnatnr. 11 Coke, 30. A person confessing his guilt when arraigned is deemed to have been found guilty, and is, as It were, con- demned by his own sentence.

5e apparatus — Not carried into the 5th edition (1979).

## CONFIDENCE.

Trust; reliance: ground of trust In the construction of wills, this

word Is considered peculiarly appropriate to create a trust “It Is as applicable to the subject

of a trust, as nearly a synonym, as the English language is capable of. Trust Is a confidence which one man reposes in another, and confidence Is a trust” Appeal of Coates, 2 Pa. 133. '

5e apparatus — Carried into the 5th edition (1979).

## CONFIDENTIAL.

Intrusted with the confidence of another or with his secret af- fairs or purposes; intended to be held In confidence or kept secret

—Confidential communications. See Com- munication.— Confidential creditor. This term has been applied to the creditors of a fail- ing debtor who furnished him with the means of obtaining credit to which he was not entitled. Involving in loss the unsuspecting and fair-deal- ing creditors. Gay v. Strickland, 112 Ala. 567, 20 South. 921.— Confidential relation. A fiduciary relation. These phrases are used as convertible terms. It is a peculiar relation which exists between client and attorney, prin- cipal and agent, principal and surety, landlord and tenant, parent and child, guardian and ward, ancestor and heir, husband and wife, trus- tee and cestui gue trust, executors or adminis- trators and creditors, legatees, or distributees, appointer and appointee under powers, and part- ners and part owners. In these and like cases, the law, in order to prevent undue advantage from the unlimited confidence or sense of duty which the relation naturally creates, requires the utmost degree of good faith in all transactions between the parties. Robins v. Hope, 57 Cal. 493j People v. Palmer, 152 N. Y. 217, 46 N.

E. 328; Scattergood v. Kirk, 192 Pa. 263. 43 Atl. 1030; Brown v. Deposit Co., 87 Md. 377, 40 Atl. 256.

5e apparatus — Carried into the 5th edition (1979).

## CONFINEMENT.

Confinement may be by either a moral or a physical restraint, by threats of violence with a present force, or by physical restraint of the person. U. S. v. Thompson, 1 Sumo. 171, Fed. Cas. No. 16,492 ; Ex parte Snodgrass, 43 Tex. Cr. R. 8J59, 65 S. W. 1061.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Grandmaster Flash and the Furious Five, 'The Message', 1982]**

"It's like a jungle sometimes / It makes me wonder how I keep from goin' under" — the song is hip-hop's canonical portrait of the inner city as a cage: confinement with no bars, held in place by poverty ("Got no money to move out, I guess I got no choice / I tried to get away but I couldn't get far").

Why: Added because the entry expressly provides that confinement "may be by either a moral or a physical restraint" — the song documents the moral/circumstantial kind, restraint without walls. Genuine illumination of the d…

## CONFIRM.

To complete or establish that which was Imperfect or uncertain; to ratify what has been done without authority or Insufficiently. Boggs v. Mining Co., 14 Cal 305; Railway Co. v.

Ransom, 15 Tex. Civ. App. 689, 41 S. W. 826.

Coafirmsre est Id Annum facers quod pries - lnfirmum fnit. Co. Lltt 295. To confirm Is to make firm that which was be- fore infirm.

Confirm arc nemo potest prina qosm jns el aceiderlt. No one can confirm be- fore the right accrues to him. 10 Coke, 48.

Conflrmat usum qni to Hit abnsnm.

He confirms the use [of a thing] who re- moves the abuse, [of It] Moore, 764.

5e apparatus — Carried into the 5th edition (1979).

## CONFIRMATIO.

The conveyance of an estate, or the communication of a right that one hath in or unto lands or tenements, to another that hath the possession thereof, or some other estate therein, whereby a void- able estate is made sure and unavoidable, or whereby a particular estate Is Increased or

enlarged. Sbep. Touch. 311; 2 Bl. Comm. 325.

— Confirmatio crescens. An enlarging con- firmation ; one which enlarges a rightful estate. Sbep. Touch. 311.— Confirmatio dimlnnens. A diminishing confirmation. A confirmation which tends and serves. to diminish and abridge the services whereby a tenant doth hold, operat- ing as a release of part of the services. Shep. Touch. 311.— Confirmatio perflciena. A con- firmation which makes valid a wrongful and de- feasible title, or makes a conditional estate ab- solute. Shep. Touch. 311.

5e apparatus — Not carried into the 5th edition (1979).

## CONFIRMATIO CHAHTARUM.

Lat

Confirmation of the charters. A statute passed in the 25 Edw. I., whereby the Great Charter Is declared to be allowed as the common law; all judgments contrary to it are declared void; copies of it are ordered to be sent to all cathedral churches and read twice a year to the people; and sentence of excommunication is directed to be as con- stantly denounced against all those that, by word or deed or counsel, act contrary there- to or in any degree infringe it 1 Bl. Comm. 128.

Confirmatio est nulla nbi donum prac- oedens est Invalidum. Moore, 764; Co. Litt 295. Confirmation is void where the preceding gift is invalid.

Confirmatio onuses snpplet defectus, licet id quod actum est ab initio non valnit. Co. Litt 2956. Confirmation sup- plies all defects, though that which had been done was not valid at the beginning.

5e apparatus — Not carried into the 5th edition (1979).

## CONFIRMATION.

A contract by which that which was Infirm, imperfect, or subject to be avoided is made firm and unavoidable.

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A conveyance of an estate or right in esse, whereby a voidable estate is fnnde sure and unavoidable, or whereby a particular estate is increased. Co. Litt 2956. Jackson v. Root 18 Johns. (N. Y.) 60; People v. Law, 34 Barb. (N. Y.) 511; De Mares v. Gilpin, 15 Cblo. 76, 24 Pac. 568.

In English ecclesiastical law. The rati- fication by the archbishop of the election of a bishop by dean and chapter under the king's letter missive prior to the investment and consecration of the bishop by the arch- bishop. 25 Hen. VIII. c. 20.

—Confirmation of sale. The confirmation of a judicial sale by the court which ordered it is a signification in some way (usually by the en- try of an order) of the court's approval of the terms, price, and conditions of the sale. John- son v. Cooper. 56 Miss. 618; Hyman v. Smith, 13 W. Va. 765.

5e apparatus — Carried into the 5th edition (1979).

## CONFIRMAVI.

Lat I have confirmed. The emphatic word in the ancient deeds of confirmation. Fleta, lib. 3, c. 14, § 5.

5e apparatus — Not carried into the 5th edition (1979).

## CONFIRMEE.

The grantee in a deed of confirmation.

5e apparatus — Not carried into the 5th edition (1979).

## CONFIRMOR.

The grantor in a deed of confirmation.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISCABLE.

Capable of being con- fiscated or suitable for confiscation; liable to forfeiture. Camp v. Lockwood, 1 Dali. (Pa.) 393, 1 L. Ed. 194.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISCARE.

In civil and old English law.. To confiscate; to claim for or bring into the fisc, or treasury. Bract fol. 150.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISCATE.

To appropriate property to the use of the state. To adjudge property to be forfeited to the public treasury; to seize and condemn private forfeited property to public use. Ware v. Hylton, 3 Dali. 234, 1 L. Ed. 568; State v. Sargent, 12 Mo. App. 234.

Formerly, it appears, this term was used as synonymous with "forfeit" but at present the distinction between the two terms is well mark- ed. Confiscation supervenes upon forfeiture. The person, by his act, forfeits his property; the state thereupon appropriates it

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that is, con- fiscates it. Hence, to confiscate property Im- plies that it has first been forfeited ; but to for- feit property does not necessarily imply that it will be confiscated.

“Confiscation” is also to be distinguished from "condemnation” as prize. The former is the act of the sovereign against a rebellious subject; the latter is the act of a belligerent against an- other belligerent. Confiscation may be effected by such means, summary or arbitrary, as the sovereign, expressing its will through lawful channels, may please to adopt. Condemnation as prize can only be made in accordance with prin- ciples of law recognized in the common juris- prudence of the world. Both are proceedings in rent, but confiscation recognizes the title of the original owner to the property, while in prize the tenure of the property is qualified, provisional, and destitute of absolute ownership. Winchester v. D. S., 14 Ct Cl. 48.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISCATES.

One whose property has been seized and sold under a confiscation act, e. g., for unpaid taxes. See Brent v. New Orleans, 41 La. Ann. 1098, 6 South. 793.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISCATION.

The act of confiscat- ing; or of condemning and adjudging to the public treasury.

— Confiscation acts. Certain acts of con- gress, enacted during the progress of the civil war (1861 and 1862) in the exercise of the war powers of the government and meant to strengthen its hands and aid in suppressing the rebellion, which authorized the seizure, con- demnation, and forfeiture of “property used for insurrectionary purposes.” 12 U. S. St. at l*rge, 319, 589; Miller v. D. S., 11 Wall. 268, 20 L. Ed. 135 ; Semmes v. XT. S., 91 U. S. 27, 23 L. Ed. 193.— Confiscation oases. The name given to a group of fifteen cases decided by the United States supreme court in 1868, on the validity and construction of the confiscation acts of congress. Reported in 7 Wall. 454, 19

L. Ed. 196.

5e apparatus — Not carried into the 5th edition (1979).

## CONFISK.

An old form of confiscate.

5e apparatus — Carried into the 5th edition (1979).

## CONFITENS  REDS.

An accused person who admits his guilt.

CONFLICT OF LAWS. 1. An opposi- tion, conflict, or antagonism between differ-

«nt laws of the same state or sovereignty upon the same subject-matter.

2. A similar Inconsistency between the municipal laws of different states or coun- tries, arising In the case of persons who have acquired rights or a status, or made contracts, or incurred obligations, within the territory of two or more states.

3. That branch of Jurisprudence, arising from the diversity of the laws of different nations In their application to rights and remedies, which reconciles the inconsistency, or decides which law or system is to govern In the particular case, or settles the degree of force to be accorded to the law of a foreign country, (the acts or rights in ques- tion having arisen under it,) either where it varies from the domestic law, or where the domestic law is silent or not exclusively applicable to the case In point. In this sense it is more properly called “private Inter- national law.’’

5e apparatus — Not carried into the 5th edition (1979).

## CONFLICT OF PRESUMPTIONS.

In

this conflict certain rules are applicable, viz.: (1) Special take precedence of general pre- sumptions; (2) constant of casual ones; (3) presume in favor of innocence; (4) of legal- ity; (5) of validity; and, when these rules fall, the matter Is said ta be at large. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CONFORMITY.

In English ecclesiasti- cal • law. Adherence to the doctrines and usages of the Church of England.

— Conformity, hill of. See Bnx 07 Con- formity.

5e apparatus — Carried into the 5th edition (1979).

## CONFRAXRIE.

Fr. In old English law. A fraternity, brotherhood, or society. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONFRERES.

Brethren in a religious house; fellows of one and the same society. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONFRONTATION.

In criminal law. the act of setting a witness face to face with the prisoner, In order that the latter may make any objection he has to the witness, or that the witness may identify the accused. State v. Behrman, 114 N. C. 797, 19 S. E. 220, 25 L. R. A. 449; Howser v. Com., 51 I’a. 332; State v. Mannion, 19 Utah, 505, 57 Pac. 542, 45 L. R. A. 638, 75 Am. St. Rep. 753; People v. Elliott, 172 N. Y. 146, 64 N. E. 837, 60 L. R. A. 318.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — Confrontation Clause ("the accused shall enjoy the right... to be confronted with the witnesses against him")]**

The entry defines confrontation in criminal law as setting the witness face to face with the prisoner; the constitutional guarantee of that practice is the Sixth Amendment's Confrontation Clause.

Why: The entry describes the practice; the clause is the verbatim constitutional source of the right to it. Real

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provision, precise fit.

**[Scripture] — Scripture**

**[Matthew 18:15, KJV]**

Moreover if thy brother shall trespass against thee, go and tell him his fault between thee and him alone: if he shall hear thee, thou hast gained thy brother.

Why: The face-to-face meeting of the accuser with the accused — confrontation as the entry defines it, prescribed as the first step of the procedure. (Jesus' own words: red-letter.)

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Atticus Finch's cross-examination sets the Ewell witnesses face to face with Tom Robinson — the accused confronting his accusers in open court. (paraphrase)

Why: Entry defines confrontation as setting a witness face to face with the prisoner. The novel's trial is the canonical fictional dramatization of the right of confrontation; paraphrase marked.

## CONFUSIO.

In the civil law. The in- separable intermixture of property belonging to dilfferent owners; it is properly confined to the pouring together of fluids, but is some- times also used of a melting together of met- als or any compound formed by the irrecov- erable commixture of different substances.

It Is distinguished from commixtion by the fact that in the latter case a separation may be made, while in a case of confusio there cannot be. 2 Bl. Comm. 405.

5e apparatus — Not carried into the 5th edition (1979).

## CONFUSION.

This term, as used in the civil law and in compound terms derived from that source, means a blending or inter- mingling, and is equivalent to the term “merger” as used at common law. Palmer v. Burnside, 1 Woods, 182, Fed. Cas. No. 10,685.

— Confusion of boundaries. The title of that branch of equity jurisdiction which relates to the discovery and settlement of conflicting, disputed, or uncertain boundaries.— Confusion of debts. A mode of extinguishing a debt, by the concurrence in the same person of two qual- ities which mutually destroy one another. This may occur in several ways, as where the cred- itor becomes the heir of the debtor, or the debt- or the heir of the creditor, or either accedes to the title of the other by any other mode of transfer. Woods v. Ridley, 11 Humph. (Tenn.) 198. — Confusion of goods. The inseparable intermixture of property belonging to different owners; properly confined to the pouring to- gether of fluids, but used in a wider sense to designate any indistinguishable compound of elements belonging to different owners. The term "confusion” is applicable to a mixing of chattels of one and the .same general descrip- tion, differing thus from "accession," which is where various materials are united in one prod- uct. Confusion of goods arises wherever the goods of two or more persons are so blended as to have become undistinguishable. 1 Seliouler, Pers. Prop. 41. Treat v. Barber, 7 Conn. 280 ; Robinson v. Holt, 39 N. H. 503, 75 Am. Dec. 233; Belcher v. Commission Co., 26 Tex. Civ. App. 60, 62 S. W. 924. — Confusion of rights. A union of the qualities of debtor and creditor in the same person. The effect of such a union

is. generally, to extinguish the debt. 1 Salk. 306 ; *Cro. Car. 551 . — Confusion of titles. A civil-law expression, synonymous with “merger,” as used in the common law, applying where two titles to the same property unite in the same person. Palmer v. Burnside, 1 Woods, 179, Fed. Cas. No. 10,685.

CONG& Fr. In the French law. Per- mission, leave, license; a passport or clear- ance to a vessel ; a permission to arm, equip, or navigate a vessel.

— Cong6 d'accorder. Leave to accord. A permission granted by the court, in the old pro- cess of levying a fine, to the defendant to agree with the plaintiff.— GongS d'emparler. Leave to imparl. The privilege of an imparlance, (li- centia loqucndi.) 3 Bl. Comm. 299.— CongS d’esiire. A permission or license from tne British sovereign to a dean and chapter to elect a bishop, in time of vacation ; or to an abbey or priory which is of royal foundation, to elect an abbot or prior.

5e apparatus — Carried into the 5th edition (1979).

## CONGEABLE.

L. Fr. Lawful; permis- sible; allowable. “Disseisin is properly where a man entereth into any lands or tene- ments where his entry is not congeable, and putteth out him that hath the freehold.” Lltt. S 279. See Ricard v. Williams, 7 Wheat. 107, 5 L. Ed. 398.

5e apparatus — Not carried into the 5th edition (1979).

## CONGILDONES.

In Saxon , law. Fel- low-members of a guild.

5e apparatus — Not carried into the 5th edition (1979).

## CONGIUS.

An ancient measure contain- ing about a gallon and a pint. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONGREGATION.

An assembly or so- ciety of persons who together constitute the

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principal supporters of a particular parish, or habitually meet at the same church for relig- ious exercises. Robertson v. Bullions, 9 Barb. (N. Y.) 67; Runkel v. Wlnemlller, 4 liar. & MeH. (Md.) 452, 1 Am. Dec. 411; In re Walker, 200 111. 566, 68 N. B. 144.

In the ecclesiastical law, this term Is used to designate certain bureaus at Rome, where ecclesiastical matters are attended to.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 10:25, KJV]**

Not forsaking the assembling of ourselves together, as the manner of some is; but exhorting one another: and so much the more, as ye see the day approaching.

Why: The religious assembly as a commanded practice — the entry's congregation described from the inside.

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(Apostolic: no flag.)

## CONGRESS.

In international law.

An assembly of envoys, commissioners, dep- uties, etc., from different sovereignties who meet to concert measures for their common good, or to adjust their mutual concerns.

In American law. The name Of the leg- islative assembly of the United States, com- posed of the senate and house of representa- tives, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 1 — legislative powers vested in a Congress consisting of a Senate and House of Representatives]**

The entry's American-law sense — the legislative assembly of the United States, composed of the senate and house of representatives — is the verbatim definition of Article I's vesting clause.

Why: Article I, § 1 is the constitutional source of the entry's definition ('All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representa…

## CONGRESSUS.

The extreme practical test of the truth of a charge of impotence brought against a husband by a wife. It is now disused. Causes C616bres, 6, 183.

5e apparatus — Not carried into the 5th edition (1979).

## CON JECTIO.

In the civil law of evidence. A throwing together. Presumption ; the put- ting of things together, with the inference drawn therefrom.

5e apparatus — Not carried into the 5th edition (1979).

## CONJECTIO CAUSA.

In the civil law. A statement of the case. A brief synopsis of the case given by the advocate te the judge in opening the trial. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## CONJECTURE.

A slight degree of cre- dence, arising from evidence too weak or too remote to cause belief. Weed v. Scofield, 78 Conn. 670, 49 Atl. 22.

Supposition or surmise. The idea of a fact, suggested by another fact; as a possi- ble cause, concomitant, or result Burrill, Oirc. Ev. 27.

CON JOINTS.- Persons married to each other. Story, Confl. Laws, j 71.

5e apparatus — Carried into the 5th edition (1979).

## CONJUDEX.

In old English law. An associate Judge. Bract 403.

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## CONJUGAL RIGHTS.

Matrimonial rights; the right which husband and wife have to each other's society, comfort and affection.

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**[Scripture] — Scripture**

**[1 Corinthians 7:3-4, KJV]**

Let the husband render unto the wife due benevolence: and likewise also the wife unto the husband. The wife hath not power of her own body, but the husband: and likewise also the husband hath not power of his own body, but the wife.

Why: The mutual, reciprocal rights of husband and wife stated as duty — the entry's concept in apostolic form. (Apostolic: no flag.)

## CONJUGIUM.

One of the names of mar- riage, among the Romans. TayL Civil Law, 284.

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCT.

In Scotch law. Joint

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCTA.

In the civil law. Things joined together or united; as distinguished from disjuncta, things disjoined or separated. Dig. 50, 16, 53.

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCTIM.

Lat. In old English law. Jointly. Inst. 2, 20, 8.

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCTIM ET DIVISIM.

L. Let

In old English law. Jointly and severally.

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCTIO.

In the civil law. Con- junction ; connection of words in a sentence. See Dig. 50, 16, 29, 142.

Conjunotio mariti et femlnje est de jure naturae. The union of husband and wife is of the law of nature.

5e apparatus — Not carried into the 5th edition (1979).

## CONJUNCTIVE.

A grammatical term, for particles which serve for joining or con- necting together. Thus, the conjunction “and” is called a “conjunctive,” and “or" a “disjunctive,” conjunction.

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—Conjunctive denial. Where several ma- terial facts are stated conjunctively in the complaint, an answer which undertakes to deny their averments as a whole, conjunctively stat- ed, is called a “conjunctive denial.” Doll v. Good, 38 Cal. 287.— Conjunctive obligation. See Obligation.

5e apparatus — Carried into the 5th edition (1979).

## CONJURATIO.

In old English law.

A swearing together; an oath administered to several together; a combination or con- federacy under oath. OowelL

In old European law. A compact of the inhabitants of a commune, or municipality, confirmed by their oaths to each other and which was the basis of the commune. Stepb. Led. 119.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The verse states the juridical function of the oath — confirmation, the end of strife — which is what the sworn confederacy invokes. It illuminates the oath-element of the entry. (Apostolic exposition: no flag.)

## CONJURATION.

In old English law. A plot or compact made by persons combin- ing by oath to do any public harm. OowelL

The offense of having conference or com- merce with evil spirits, in order to discover some secret, or effect some purpose. Id. Classed by Blackstone with witchcraft, en- chantment, and sorcery, but distinguished from each of these by other writers. 4 Bl. Comm. 60; Cowell. Cooper v. Livingston. 19 Fla. 693.

5e apparatus — Not carried into the 5th edition (1979).

## CONJURATOR.

In old English law. One who swears or Is sworn with others, one bound by oath with others; a compur- gator ; a conspirator.

5e apparatus — Not carried into the 5th edition (1979).

## CONNECTIONS.

Relations by blood or marriage, but more commonly the relations of a person with whom one is connected by marriage. In this sense, the relations of a wife are “connections” of her husband. The term is vague and indefinite, gee Storer v. Wheatley, 1 Pa. 507.

5e apparatus — Carried into the 5th edition (1979).

## CONNEXITE.

In French law. This ex- ists when two actions are pending which, although not identical as in ii-s pendens, are so nearly similar in objed that it is expedi- ent to have them both

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adjudicated upon by the same Judges. Arg. Fr. Merc. Law, 553.

5e apparatus — Not carried into the 5th edition (1979).

## CONNIVANCE.

The secret or indirect consent or permission of one person to the commission of an unlawful or criminal ad

by another. Oakland Bank v. Wilcox, 60 Cal. 137 ; State ▼. Gesell, 124 Mo. 531, 27 8.

W. 1101.

Literally, a winking at; intentional for- bearance to see a fault or other act ; general- ly implying consent to it Webster.

Connivance is the corrupt consent of one party to the commission of the acts of the other, constituting the cause of divorce. Civ. Code Cal. § 112. Dennis v. Dennis, 68 Conn. 186, 36 AtL 34, 34 L. It. A. 449, 57 Am. St Bep. 95 ; Robbins v. Robbins, 140 Mass. 528, 5 N. B. 837, 54 Am. Rep. 488.

Connivance differs from condonation, though the same legal consequences may attend it. Connivance necessarily involves criminality on the part of the individual who connives; condonation may take place without imputing the slightest blame to tne party who forgives the injury. Connivance must be the act of the mind before the offense has been committed; condonation is the result of a determination to forgive an injury which was not known until after it was inflicted. Turton v. Turton, 8 Hagg. Ecc. 350.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 17:30, KJV]**

And the times of this ignorance God winked at; but now commandeth all men every where to repent.

Why: The entry's own gloss is 'a winking at' — and the KJV uses exactly that phrase for connivance: God forebearing to see. The verse illuminates the concept in the Authorized Version's own idiom. (Paul: no flag.)

## CONNOISSEMENT.

In French law. An instrument similar to our bill of lading.

5e apparatus — Not carried into the 5th edition (1979).

## CONNUBIUM.

In the civil law. Mar- riage. Among the Romans, a lawful mar- riage as distinguished from "concubinage,” (q. v.,) which was an Inferior marriage.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GONOCIAMENTO.

In Spanish law. A recognizance. White, New Recop. b. 3, tit. 7, c. 6, I 3.

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5e apparatus — Not carried into the 5th edition (1979).

# C

## CONOCXMZENTO.

In Spanish law. A bill of lading. In the Mediterranean ports it is called “poliza de cargamiento."

5e apparatus — Not carried into the 5th edition (1979).

## CONPOSSESSIO.

In modern civil law. A Joint possession. Mackeld. Rom. Law, | 245.

5e apparatus — Not carried into the 5th edition (1979).

## CONQUEREUR.

In Norman and old English law. The first purchaser of an es- tate; he who first brought an estate into his family.

5e apparatus — Not carried into the 5th edition (1979).

## CONQUEROR.

In old English and Scotch law. The first purchaser of an es- tate ; he who brought it into the family own- ing it 2 Bl. Comm. 242, 243.

5e apparatus — Carried into the 5th edition (1979).

## CONQUEST.

In feudal law. Conquest ; acquisition by purchase; any method of ac- quiring the ownership of an estate other than by descent Also an estate acquired otherwise than by inheritance.

In international law. The acquisition of the sovereignty of a country by force of arms, exercised by an independent power which reduces the vanquished to the submis- sion of its empire. Castillero v. U. S., 2 Black, 109, 17 L. Ed. 360.

In Sootch law. Purchase. BelL

5e apparatus — Carried into the 5th edition (1979).

## CONQUESTOR.

Conqueror. The title given to William of Normandy.

CONQUEtS. In French law. The name given to every acquisition which the hus- band and wife, Jointly or severally, make during the conjugal community. Thus, what- ever is acquired by the husband and wife, either by his or her industry or good fortune, inures to the extent of one-half for the bene- fit of the other. Merl. Repert. “Conqudt.” Picotte v. Cooley, 10 Mo. 312.

5e apparatus — Not carried into the 5th edition (1979).

## CONQUXSITIO.

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In feudal and old Eng- lish law. Acquisition. 2 Bl. Comm. 242.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GONQUXSITOR.

In feudal law. A pur- chaser, acquirer, or conqueror. 2 Bl. Comm. 242, 243.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CONSANOUINEUS.

Lat A person re- lated by blood ; a person descended from the same common stock.

— Consanguineus Inter. In civil and feud- al law. A half-brother by the father's side, as distinguished from frater uterine*, a brother by the mother’s side.

Consanguinens est quasi eodem san- guine natua. Co. Lltt 157. A person re- lated by consanguinity is, as it were, sprung from the same blood.

5e apparatus — Not carried into the 5th edition (1979).

## CONSANGUINITY.

Kinship; blood re- lationship ; the connection or relation of per- sons descended from the same stock or common ancestor. 2 Bl. Comm. 202; BJodget v. Brinsmaid, 9 Vt 30; State v. De Hart, 109 La. 570, 33 South. 605; Tepper v. Supreme Council, 69 N. J. Eq. 321, 45 AO. Ill; Rector v. Drury, 3 Pin. (Wis.) 298.

Lineal and collateral consanguinity.

Lineal consanguinity is that which subsists be- tween persons of whom one is descended in a direct line from the other, as between son, father, grandfather, great-grandfather, and so upwards in the direct ascending line ; or be- tween son, grandson, great-grandson., and so downwards in the direct descending line. Col- lateral consanguinity is that which subsists be- tween persons who have the same ancestors, ■but who do not descend (or ascend) one from the other. Thus, father and son are related by lineal consanguinity, uncle and nephew by col- lateral consanguinity. 2 Bl. Comm. 203 ; Mc- Dowell v. Addnms, 45 Pa. 432 ; State v. De Hart. 109 La. 570, 33 South. 605: Brown v. Baraboo, 90 Wis. 151, 62 N. W. 921, 30 L. R.

A. 320.

“Affinity” distinguished. Consanguinity, denoting blood relationship, is distinguished from “affinity,” which is the connection existing in consequence of a marriage, between, each of the married persons and the kindred of the other. Tegarden v. Phillips, 14 Ind. App. 27, 42 N. E. 549 ; Carman v. Newell. 1 Denio (N. Y.) 25; Spear v. Robinson, 29 Me. 645.

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5e apparatus — Not carried into the 5th edition (1979).

## CONSCIENCE.

The moral sense; the faculty of judging the moral qualities of ac- tions, or of discriminating between right and wrong; particularly applied to one's percep- tion and judgment of the moral qualities of his own conduct, but in a wider sense, de-

CONSENSUS TOLLIT ERROREM

noting a similar application of the standards of morality to the acts of others. In law, especially the moral rule which requires probity, justice, and honest dealing between man and man, as when we say that a bar- gain is "against conscience" or "unconscion- able," or that the price paid for property at a forced sale was so Inadequate as to "shock the conscience." This is also the meaning of the term as applied to the jurisdiction and principles of decision of courts of chan- cery, as in saying that such a court is a "court of conscience," that it proceeds "ac- cording to conscience," or that it has cog- nizance of "matters of conscience." See 3 Bl. Comm. 47-56; People v. Stewart, 7 Cal. 143; Miller v. Miller, 187 Pa. 572, 41 AtL 277.

— Conscientious scruple. A conscientious scruple against taking an oath, serving as a juror in a capital case, doing military duty, or the like, is an objection or repugnance growing out of the fact that the person believes the thing demanded of him to be morally wrong, his con- science being the sole guide to his decision; it is thus distinguished from an "objection on prin- ciple," which is dictated by the reason and judg- ment, rather than the moral sense, and may re- late only to the propriety or expediency of the thing in question. People v. Stewart, 7 Cal. 143. — "Conscience of the court." When an issue is sent out of chancery to be tried at law, to "inform the conscience of the court," the meaning is that the court is to be supplied with exact and dependable information as to the unsettled or disputed questions of fact in the case, in order that it may proceed to de- cide it in accordance with the principles of eq- uity and good conscience in the light of the facts thus determined. See Watt v. Starke, 101

U. S. 252, 25 L. Eld. 826.— Conscience, courts of. Courts, not of record, constituted by act of parliament in the city of London, and other towns, for the recovery of small debts; other- wise and more commonly called "Courts of Re- quests." 3 Steph. Comm. 451.— Conscience, right of. As used in some constitutional pro- visions, this phrase Is equivalent to religious liberty or freedom of conscience. Com. v. lush- er, 17 Serg. & R. (Pa.) 155 ; State v. Cummings, 36 Mo. 263.

Conscientia dicitnr a con et solo, quasi scire cum Deo. 1 Coke, 100. Conscience Is called from con and ado, to know, as it were, with God.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 2:15, KJV]**

their conscience also bearing witness, and their thoughts the mean while accusing or else excusing one another.

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Why: The verse describes exactly the entry's faculty — conscience bearing witness, thoughts accusing or excusing one's own conduct. Direct bearing. (Apostolic: no flag.)

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Macbeth, c. 1606]**

Macbeth, after the murder, stares at his hands: "Will all great Neptune's ocean wash this blood clean from my hand?"

Why: Entry defines conscience as the moral sense judging actions. The verbatim line (certain) is the canonical dramatic image of an unquiet conscience.

## CONSCIENTIA REI AXIENI.

In

Scotch law. Knowledge of another's proper- ty ; knowledge that a thing is not one’s own, but belongs to another. He who has this knowledge, and retains possession, is charge- able with “violent profits.”

5e apparatus — Not carried into the 5th edition (1979).

## CONSCRIPTION.

Drafting into the military service of the state; compulsory service falling upon all male subjects even- ly, within or under certain specified ages. Kneedler v. Lane, 45 Pa. 267.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Selective Draft Law Cases, 245 U.S. 366 (1918)]**

The entry defines conscription as compulsory military service; the landmark decision sustaining the draft against constitutional challenge is the Selective Draft Law Cases.

Why: The entry defines the practice (with Kneedler v. Lane); the Selective Draft Law Cases are the U.S. Supreme Court's decision upholding conscription against Thirteenth Amendment attack — the governing authority on the p...

## CONSECRATE.

In ecclesiastical law. To dedicate to sacred purposes, as a bishop by imposition of hands, or a church or churchyard by prayers, etc. Consecration is performed by a bishop or archbishop.

Conaeoratio est period us election!* t eleotio eat prseambula oonaeorationis. 2

Rolle, 102. Consecration is the termination of election; election is the preamble of con- secration.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 28:41, KJV]**

and consecrate them, and sanctify them, that they may minister unto me in the priest's office.

Why: The consecration of Aaron and his sons — dedication to sacred office by anointing — is the entry's act in its archetypal form. (The LORD instructing Moses: red-letter.)

## CONSEDO.

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Sp. A term nsed in con- veyances under Mexican law-, equivalent to the English word “grant.” Mulford v. Le Franc, 26 Cal. 103.

5e apparatus — Not carried into the 5th edition (1979).

### CONSEH.

DE FAMILLE. In French law. A family council. Certain acts require the sanction of this body. For example, a guardian can neither accept nor reject an in- heritance to which the minor has succeeded without Its authority, (Code Nap. 461 ;) nor can he accept for the child a gift inter vivos without the like authority, (Id. 463.)

CONSEIIi JTJDICIAIRE. In French law. When a person has been subjected to an interdiction on the ground of his Insane extravagance, but the interdiction is not ab- solute, but limited only, the court of first instance, which grants the interdiction, ap- points a council, called by this name, with whose assistance the party may bring or de- fend actions, or compromise the same, alien- ate bis estate, make or Incur loans, and the like. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## G

### GONSEILS DE PRUDHOMMES.

In

French law. A species of trade tribunals, charged with settling differences between masters and workmen. They endeavor, in the first instance, to conciliate the parties. In default, they adjudicate upon the ques- tions in dispute. Their decisions are final up to 200/. Beyond that amount, appeals lie to the tribunals of commerce. Arg. E'r. Merc. Law, 553.

5e apparatus — Not carried into the 5th edition (1979).

## C

### CONSENSUAL CONTRACT.

term derived from the civil law, denoting a con- tract founded upon and completed by the mere consent of the contracting parties, without any external formality or symbolic act to fix the obligation.

Consensus est voluntas plnrium ad quo* res pertinet, simnl juncta. Lofft, 514. Consent is the conjoint will of several person b to whom the thing belongs.

Consensus f acit legem. Consent makes the law. (A contract is law between the parties agreeing to be bound by it) Branch, Princ.

Consensus, non ooncnhitns, faoit nup- tial rel matrimoninm, et eonsentire non possunt ante annos nubile*. 6 Coke, 22. Consent and not cohabitation, constitutes nuptials or marriage, and persons cannot consent ‘before marriageable years. 1 Bl. Comm. 434.

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Consensus tollit errorem. Co. Lltt. 126. Consent (acquiescence) removes mistake.

Consensus voluntas xnultorum ad 4001 Mi pertinet, slimil junota. Consent is the united will of several interested in one sub- ject-matter. Davis, 48; Branch, iPrinc.

5e apparatus — Not carried into the 5th edition (1979).

## CONSENT.

A concurrence of wills. Express consent is that directly given, cither viva voce or in writing.

Implied consent is that manifested by signs, actions, or facts, or by inaction or silence, which raise a presumption that the consent has been given. Cowen v. Paddock, 62 Hun, 622, 17 N. V. Supp. 388.

Consent in an act of reason, accompanied with deliberation, the mind weighing as in a balance the good or evil on each side. 1 Story, Eq. Jur. $ 222; Plummer v. Com., 1 Bush (Ky.) 76; Dlcken v. Johnson, 7 Ga. 492; Mactier v. Frith, 6 Wend. (N. V.) 114, 21 Am. Dec. 262; People v. Studwell, 91 App. Div. 469, 86 N. Y. Supp. 967.

There is a difference between consenting and snbmitting. Every consent involves a submis- sion ; but a mere submission does not necessar- rily involve consent 9 Car. & P. 722. —Consent decree. See Decbee.— Consent judgment. See JUDGMENT.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Amos 3:3, KJV]**

Can two walk together, except they be agreed?

Why: The verse states the principle the entry presupposes — no joint undertaking without concurrence of wills. Genuine bearing on consent as the ground of contract. (Prophetic rhetoric inside the LORD's oracle, not first-p…

## CONSENT-RULE.

In English practice. A superseded Instrument, in which a defend- ant in an action of ejectment specified for what purpose he intended to defend, and un- dertook to confess not only the fictitious lease, entry, and ouster, but that he was in possession.

Consentientes et agentes pari plena plectentur. They who consent to an act, and they who do it, shall be visited with equal punishment 5 Coke, 80.

Consentire matrimonio non possnnt infra [ante] annos nnbiles. Parties can- not consent to marriage within the years of marriage, [before the age of consent.] 6 Coke, 22.

Conseqnentim non eat conaeqnentia.

Bac. Max. The consequence of a consequence exists not

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CONSEQUENTIAL CONTEMPT.

The

ancient name for what is now known as “constructive” contempt of court Ex parte Wright 65 Ind. 508. See Contempt

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CONSEQUENTIAL DAMAGE; Such damage, loss, or injury as does not flow di- rectly and immediately from the act of the party, but only from some of the consequences or results of such act. Swain v. Copper Co., Ill Tenn. 430. 78 S. W. 93 ; Pearson v. Spar- tanburg County, 51 S. C. 48Q, 29 S. E. 193.

The term “consequential damage” means sometimes damage which is so remote as not to be actionable; sometimes damage which, though somewhat remote, is actionable ; or dnm- age which, though actionable, does not follow Immediately, iq point of time, upon the doing of the act complained of. Eaton v. Railroad Co., 51 N. H. 504. 12 Am. Rep. 147.

5e apparatus — Carried into the 5th edition (1979).

## CONSEQUENTS.

In Scotch law. Im- plied powers or authorities. Things which follow, usually by implication of law. A commission being given to execute any work, every power necessary to carry it on is im- plied. 1 Kames, Eq. 242

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONSERVATOR.

A guardian; protector; preserver.

“When any person having property shall be found to be incapable of managing his affairs, by the court of probate in the dis- trict in which he resides, * • * it shall appoint some person to be his conservator, who, upon giving a probate bond, shall have the charge of the person and estate of such incapable person.” Gen. St Conn. 1875, p. 346, 1 1. Treat v. Peck, 5 Conn. 280.

—Conservators of rivers. Commissioners or trustees in whom the control of a certain river is vested, in England, by act of parliament.-— Gomerv&tori o£ the peace. Officers author- ized to preserve and maintain the public peace. In England, these officers were locally elected bv the people until the reign of Edward III. when their appointment was vested in the king. Their duties were to prevent and arrest for breaches of the peace, but they had no power to arraign and try the offender until about 1360. when this authority was given to them by act of parliament, and “then they acquired the more honorable appellation of justices of the peace.” 1 BI. Comm. 351. Even after this time, however, many public officers were styled “conservators of the peace,” not as a distinct office but by virtue of the duties and authori- ties pertaining to their offices. _ In this sense the term may include the king himself, the lord chancellor, justices of the king’s bench, master of the rolls, coroners, sheriffs, constables, etc. 1 Bl. Comm. 350. See Smith v. Abbott, 17 N.

J. Law, 358. The term is still in use m Tex- as where the constitution provides that county judges shall be conservators of the peace- Const. Tex. art. 4. § 15; Jones v. State (Tex. Or. Add.) 65 S. W. 92.

5e apparatus — Carried into the 5th edition (1979).

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## CONSIDERATIO  CURIAE.

The judg- ment of the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONSIDERATION.

The Inducement to a contract The cause, motive, price, or Impelling influence which induces a con- tracting party to enter into a contract The reason or material cause of a contract. Insurance Co. v. Raddln, 120 U. S. 183, 7 Sup. Ct 500, 30 L. Ed. 644; Eastman v.. Miller, 113 Iowa, 404, 85 N. W. 635; St Mark's Church v. Teed, 120 N. Y. 583, 24 N. E. 1014 ; Fertilizer Co. v. Dunan, 91 Md. 144, 46 Atl. 347, 50 L. R. A. 401; Kemp v. Bank, 109 Fed. 48, 48 C. C. A. 213 ; Streshley v. Powell, 12

B. Mon. (Ky.) 178; Roberts v. New York. 5 Abb. Prac. (N. Y.) 41; Rice v. Almy, 32 Conn. 297.

Any benefit conferred, or agreed to be con- ferred, upon the promisor, by any other person, to which the promisor is not lawfully entitled, or any prejudice suffered, or agreed to be suffered, by such person, other than such as he is at the time of consent lawfully bound to suffer, as an inducement to the

promisor, Is a good consideration for a prom- ise. Civ. Code Cal. | 1605.

Any act of the plaintiff from which the defendant or a stranger derives a benefit or advantage, or any labor, detriment, or incon- venience sustained by the plaintiff, however small, if such act is performed or inconven- ience suffered by the plaintiff by the consent, express or implied, of the defendant. 3 Scott, 250.

Considerations are classified and defined as follows:

They are either express or implied; the former when they are specifically stated in a deed, contract, hr other instrument; the lat- ter when inferred or supposed by the law from the acts or situation of the parties.

They are either executed or executory; the former being acts done or values given be- fore or at the time of making the contract; the latter, being promises to give or do some- thing in future.

They are either good or valuable. A good consideration is such as is founded on natural duty and affection, or on a strong moral obli- gation. A valuable consideration is founded on money, or something convertible into money, or having a value in money, except marriage, which is a valuable consideration. Code Ga. 1882, $ 2741. See Chit. Cont 7.

A continuing consideration is one consist- ing in acts or performances which must necessarily extend over a considerable period of time.

Concurrent -considerations are those which arise at the same time or where the promises are simultaneous.

Equitable or moral considerations are de- void of efficacy in point of strict law, but are founded upon a moral duty, and may be made the basis of an express promise.

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A gratuitous consideration is one which is not founded upon any such loss, injury, or inconvenience to the party to whom it moves as to make it valid in law.

Past consideration is an act done before the contract is made, and is really by itself no consideration for a promise. Anson, Cont 82.

A nominal consideration is one bearing no relation to the real value of the contract or article, as where a parcel of land is described in a deed as being sold for “one dollar,” no actual consideration passing, or the real con- sideration being concealed. This term is al- so sometimes used as descriptive of an in- flated or exaggerated value placed upon prop- erty for the purpose of an exchange. Boyd v. Watson, 101 Iowa, 214, 70 N. W. 123.

A sufficient consideration is one deemed by the law of sufficient value to support an ordi- nary contract between parties, or one suffi- cient to support the particular transaction. Golson v. Dunlap, 73 Cal. 157, 14 Pac. 576.

For definition of an adequate consideration, see Adequate.

A legal consideration is one recognized or permitted by the law as valid and lawful;

as distinguished from such as are illegal or Immoral. The term is also sometimes used as equivalent to “good” or “sufficient” con- sideration. See Sampson v. Swift, 11 Vt. 315; Albert Lea College v. Brown, 88 Minn. 524, 93 N. W. 672, 60 L. R. A. 870.

A pecuniary consideration is a considera- tion for an act or forbearance which consists either in money presently passing or in mon- ey to be paid in the future, including a prom- ise to pay a debt in full which otherwise would be released or diminished by bank- ruptcy or insolvency proceedings. See Phelps v. Thomas, 6 Gray (Mass.) 328; In re Ekings (D. C.) 6 Fed. 170. AM. (It is considered by the court) The formal and ordinary commencement of a Judgment Baker v. State, 3 Ark. 491.

5e apparatus — Carried into the 5th edition (1979).

## CONSEDERATTJR.

L. Lat It is con- sidered. Held to mean the same with con- sideratum est. 2 Strange, 874. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONSIGN.

In the civil law. To de- posit in the custody of a third person a thing belonging to the debtor, for the benefit of the creditor, under the authority of a court of justice. Poth. Obi. pt 3, c. 1, art. 8.

- In commercial law. To deliver goods to a carrier to be transmitted to a designated factor or agent Powell v. Wallace, 44 Kan. 656, 25 Pac. 42; Sturm v. Boker, 150 U. S. 812, 14 Sup. Ct 99, 37 L. Ed. 1093; Ide Mfg. Co. v. Sager Mfg. Co., 82 111. App. 685.

To deliver or transfer as a charge or trust ; to commit intrust, give in trust; to transfer from oneself to the care of another; to send or transmit goods to a merchant or factor for sale. Gillespie v. Winberg, 4 Daly (N. I.) 320.

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5e apparatus — Not carried into the 5th edition (1979).

## CONSIGNATION.

In Scotch law. The

payment of money Into the hands of a third party, when the creditor refuses to accept of it The person to whom the money is given is termed the “consignatory.” Bell.

In French law. A deposit which a debtor makes of the thing that he owes into the hands of a third person, and under the au- thority of a court of Justice. 1 Poth. Obi. 536; Weld v. Hadley, 1 N. H. 304.

5e apparatus — Not carried into the 5th edition (1979).

## CONSIGNEE.

In mercantile law. One to whom a consignment is made. The per- son to whom goods are shipped for sale. Lyon v. Alvord, 18 Conn. 80; Gillespie v. Winberg, 4 Daly (N. T.) 320 ; Comm. v. Har- ris, 168 Pa. 619, 32 Atl. 92; Railroad Co. v. Freed, 38 Ark. 622.

5e apparatus — Not carried into the 5th edition (1979).

## CONSIGNMENT.

The act or process of consigning goods ; the transportation of goods consigned; an article or collection of goods sent to a factor to be sold ; goods or property sent, by the aid of a common carrier, from

one person In one place to another person In another place. See Consign.

5e apparatus — Carried into the 5th edition (1979).

## CONSIGNOR.

One who sends or makes a consignment A shipper o f goods.

Condlla multonun qn se nmtnr in mag- ala- 4 Inst 1. The counsels of many are required In great things.

CONSXLIARrtJS. In the civil law. A counsellor, as distinguished from a pleader or advocate. An assistant judge. One who participates In the decisions. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## CONSILIUM.

A day appointed to hear the counsel of both parties. A case set down for argument

It is commonly used for the day appointed for the argument of a demurrer, or errors as- signed. 1 Tidd, Pr. 438.

5e apparatus — Not carried into the 5th edition (1979).

## CON8DOU CASH.

In practice. A writ of entry, framed under the provisions of the statute Westminster 2, (13 Edw. I.,) c. 24, which lay for the benefit of the reversioner, where a tenant by the curtesy aliened in fee or for life.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Westminster II, c. 24 (1285) — the "in consimili casu" provision, source of the action on the case]**

The garbled headword's body describes the writ of entry framed under Westminster II, c. 24 'in like case' — the famous 'in consimili casu' provision empowering the chancery to frame new writs, the historical source of the action on the case (trespass on the case).

Why: The entry names the statute but not its landmark significance; c. 24's 'in consimili casu' clause is the recognized origin of trespass on the case and hence of much of modern tort/civil pleading. Real statute, genuine…

## CONSISTING.

Being composed or made up of. This word is not synonymous with "including;” for the latter, when used In connection with a number of specified ob- jects, always implies that there may be oth- ers which are not mentioned. Farlsh v. Cook, 6 Mo. App. 331.

5e apparatus — Carried into the 5th edition (1979).

# O

## OONSISTORIUM.

The state council of the Roman emperors. Mackeld. Rom. Law, 168.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CONSISTORY.

In ecclesiastical law. An assembly of cardinals convoked by the pope.

5e apparatus — Carried into the 5th edition (1979).

## CONSISTORY COURTS.

Courts held by diocesan bishops within their several cathedrals, for the trial of ecclesiastical caus- es arising within their respective dioceses. The bishop’s chancellor, or his commissary, is the judge; and from his sentence an ap- peal lies to the archbishop. Mozley A Whit- ley.

CONSOBRINX In the civil law. Cous- ins-german, In general; brothers’ and sisters’ children, considered in their relation to each other.

5e apparatus — Carried into the 5th edition (1979).

## CONSOCIATIO.

Let An association, fellowship, or partnership. Applied by some of the older writers to a corporation, and even to a nation considered as a body politic. Thomas v. Dakin, 22 Wend. (N. Y.) 104.

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5e apparatus — Not carried into the 5th edition (1979).

## CONS OLA TO DEL MARE.

The name of a code of sea-laws, said to have been com- piled by order of the kings of Arragon (or, according to other authorities, at Pisa or Barcelona) in the fourteenth century, which comprised the maritime ordinances of the Roman emperors, of France and Spain, and of the Italian commercial powers. This com- pilation exercised a considerable Influence In the formation of European maritime law.

5e apparatus — Not carried into the 5th edition (1979).

## CONSOLIDATE.

To consolidate means something more than rearrange or redivide. In a general sense, It means to unite into one mass or body, as to consolidate the forces of an army, or various funds. In parliamentary usage, to consolidate two bills is to unite them Into one. In law, to consolidate bene- fices Is to combine them Into one. Falrview v. Durland, 45 Iowa, 56.

—Consolidated fond. In England. A fund for the payment of the public debt— Consoli- dated laws or statutes. A collection or com- pilation into one statute or one code or volume of all the laws of the state in general, or of those relating to a particular subject ; nearly the same as "compiled laws” or “compiled stat- utes.” See Compilation. And see Ellis v. Parse 11, 100 Mich. 170, 58 N. W. 839 ; Graham v. Muskegon County Clerk. 116 Mich. 571, 74 N. W. 729.— Consolidated orders. The orders regulating the practice of the English court of chancery, which were issued, In 1860, in substitution for the various orders which had previously been promulgated from time to time.

5e apparatus — Carried into the 5th edition (1979).

## CONSOLIDATION.

In the civil law.

The union of the usufruct with the estate out of which It Issues, In the same person; which happens when the usufructuary ac- quires the estate, or vice versa. In either case the usufruct is extinct Lee. El. Dr. Rom. 424.

In Scotch law. The junction of the prop- erty and superiority of an estate, where they have been disjoined. Bell.

—Consolidation of actions. The act or pro- cess of uniting several actions into one trial and judgment, by order of a court, where all the actions are between, the Bame parties, pend- ing in the Bame court, and turning upon the same or similar issues ; or the court may order that one of the actions be tried, and the others decided without trial according to the judgment in the one selected. Powell v. Gray, 1 Ala. 77 ; Jackson v. Chamberlin, 5 Cow. (N. Y.) 282; Thompson v. Shepherd, 9 Johns. (N. Y.) 262. —Consolidation of benefices. The act or process Of uniting two or more of them into one. — Consolidation of corporations. The union or merger into one corporate body of two or more corporations which had been separately created for similar or connected purposes. In England this is termed "amalgamation.” When the rights, franchises, and effects of two or more corporations are,

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by legal authority and agree- ment of the parties, combined and united into one whole, and committed to a single corpora- tion, the stockholders of which are composed of those (so far as they choose to become such) of the companies thus agreeing, this is in law, and according to common understanding, a consol- idation of such companies, whether such single corporation, called the consolidated company, be a new one then created, or one of the original companies, continuing in existence with only larger rights, capacity, and property. Meyer v. Johnston, 64 Ala. 656; Shadford v. Railway Co.. 130 Mich. 300, 89 N. W. 960; Adams v. Railroad Co.. 77 Miss. 194, 24 South. 200. 28 South. 956, 60 L. R. A. 33; Pingree v. Railroad Co., 118 Mich. 314. 76 N. W. 635, 53 L.

R. A. 274 ; People v. Coke Co., 205 111. 482. 68

N. E. 950, 98 Am. St. Rep. 244 : Buford v. Packet Co., 3 Mo. App. 171. — Consolidation rule. In practice. A rule or order of court requiring a plaintiff who bas instituted separate suits upon several claims against the same de- fendant, to consolidate them in one action, where that can be done consistently with the rules of pleading.

5e apparatus — Carried into the 5th edition (1979).

## CONSOLS.

An abbreviation of the ex- pression “consolidated annuities,’’ and used In modern times as a name of various funds united in one for the payment of the British national debt. Also, a name given to certain issues of bonds of the state of South Caro- lina. Whaley v. Gaillard, 21 S. C. 568.

Consortio malornm ate quoqne ma- lum facit. Moore, 817. The company of wicked men makes me also wicked.

5e apparatus — Not carried into the 5th edition (1979).

## CONSORTIUM.

In the civil law. A nnion of fortunes : a lawful Roman marriage. Also, the joining of several persons as par- ties to one action. In old English law, the term signified company or society. In the language of pleading, (as in the phrase per quod consortium amistt) it means the com- panionship or society of a wife. Bigaouette v. Paulet, 134 Mass. 123, 45 Am. Rep. 307; Lockwood v. Lockwood, 67 Minn. 47G, 70 N.

W. 784; Kelley v. ftallroad Co., 168 Mass. 308, 46 N. E. 1063, 38 L. R. A. 631, 60 Am. St Rep. 397.

5e apparatus — Not carried into the 5th edition (1979).

## CONSORTSHIP.

In maritime law. An agreement or stipulation between the owners of different vessels that they shall keep in company, mutually aid. Instead of interfering with each other, in wrecking and salvage, and share any money awarded as salvage, whether earned by one vessel or both. An- drews v. Wall, 3 How. 571, 11 L. Ed. 729.

5e apparatus — Carried into the 5th edition (1979).

## CONSPIRACY.

In criminal law. A combination or confederacy between two or more persons formed for the purpose of com- mitting, by their joint efforts, some unlaw- ful or criminal act, or some act which is in- nocent in Itself, but becomes unlawful when done by the concerted action of the conspira- tors, or for the purpose of using criminal or unlawful means to the commission of an act not In Itself unlawful. Pettibone v. U. S., 148 U. S. 197, 13 Sup. Ct. 542, 37 L. Ed. 419; State v. Slutz, 106 La. 1S2, 30 South. 29S; Wright v. U. S., 108 Fed. 805, 48 C. C. A. 37;

V. S. v. Benson, 70 Fed. 591, 17 C. C. A. 293 ; Glrdner v. Walker, 1 Heisk. (Tenn.) 186; Bout well v. Marr, 71 VL 1, 42 Atl. 607, 43

L. R. A. 803, 76 Am. St. Rep. 746; U. S. v. W eber (C. C.) 114 Fed. 950 ; Comm. v. Hunt,

4 Mete. (Mass.) Ill, 38 Am. Dec. 346; Erdman v. Mitchell, 207 Pa. 79, 56 Atl. 327, 63 L. R.

A. 534, 99 Am. St Rep. 783; Standard Oil Co. v. Doyle, 118 Ky. 662, 82 S. W. 271, 111 Am. St Rep. 331.

Conspiracy is a consultation or agreement be- tween two or more persons, either falsely to accuse another of a crime punishable by law; or wrongfully to injure or prejudice a third per- son, or any body of men, in any manner ; or to commit any offense punishable by law ; or to do any act with intent to prevent the course of justice; or to effect a legal purpose with a corrupt intent, or by improper means. Hawk.

P. C. c. 72, § 2; Archb. Crim. PI. 390, adding also combinations by journeymen to raise wages. State v. Murphy, 6 Ala. 765, 41 Am. Dec. 79.

Civil and criminal. The term "civil'' is used to designate a conspiracy which will fur- nish ground for a civil action, as where, in carrying out the design of the conspirators, overt acts are done causing legal damage, the person injured has a right of action. It is said that the gist of civil conspiracy is the injury or damage. While criminal conspiracy does not require such overt acts, yet, so far as the rights and remedies are concerned, all criminal con- spiracies are embraced within the civil conspira- cies. Brown v. Pharmacy Co., 115 Ga. 429, 41

S. E. 553, 57 L. R. A, 547, 90 Am. St. Rep. 126.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Julius Caesar, 1599]**

Cassius recruiting Brutus into the plot against Caesar: "The fault, dear Brutus, is not in our stars, / But in ourselves, that we are underlings."

Why: Entry defines conspiracy as a confederacy formed to commit a crime by joint effort. The verbatim line (certain) is the assassination conspiracy's recruitment pitch; a genuine illumination.

## CONSPXRATIONE.

An ancient writ that lay against conspirators. Reg. Orig. 134; Fitzh. Nat Brev. 114.

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## CONSPIRATORS.

Persons guilty of a conspiracy.

Those who bind themselves by oath, cov- enant or other alliance that each of them shall aid the other falsely and maliciously to Indict persons-; or falsely to move and main- tain pleas, etc. 33 Edw. I. St 2. Besides these, there are conspirators in treasonable purposes; as for plotting against the govern- ment Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Julius Caesar, 1599]**

Cassius binding Brutus by oath and persuasion into the plot against Caesar: "The fault, dear Brutus, is not in our stars, / But in ourselves, that we are underlings."

Why: Entry defines conspirators as persons bound by oath/covenant/alliance to aid one another in the plot. Same genuine link as CONSPIRACY, angled to the persons bound together; verbatim line certain.

## CONSTABLE.

In medieval law. The

name given to a very high functionary under the French and English kings, the dignity and importance of whose office was only sec- ond to that of the monarch. He was in gen- eral the leader of the royal armies, and had cognizance of all matters pertaining to war and arms, exercising both civil and military Jurisdiction. He was also charged with the conservation of the peace of the nation. Thus there was a “Constable of France” and a “Lord High Constable of England.”

In English law. A public civil officer, whose proper and general duty is to keep the peace within his district, though he is fre- quently charged with additional duties. I BL Comm. 356.

Iligh constables, in England, are officers ap- pointed in every hundred or franchise, whose proper duty seems to be to keep the king’s peace within their respective hundreds. 1 Bl. Oomm. 3545 ; 3 Steph. Comm. 47.

Petty constables are inferior officers in every town and parish, subordinate to the high consta- ble of the hundred, whose principal duty is. the preservation of the peace, though they also have other particular duties assigned to them by act of parliament, particularly the service of the summonses and the execution of the warrants of justices of the peace. 1 Bl. Comm. 356 ; 3 Steph. Comm. 47, 48.

Special constables are persons appointed (with or without their consent) by the magistrates to execute warrants on particular occasions, as in the case of riots, etc.

In American law. An officer of a mu- nicipal corporation (usually elected) whose

duties are similar to those of the sheriff, though his powers are less and his jurisdic- tion smaller. He Is to preserve the pub- lic peace, execute the process of magistrates’ courts, and of some other tribunals, serve writs, attend the sessions of the criminal courts, have the custody of juries, and dis- charge other functions sometimes assigned to him by the local law or by statute. Comm, v. Deacon, 8 Serg. & R. (Pa.) 47; Leavitt v. Leavitt, 135 Mass.

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191; Allor v. Wayne . County, 43 Mich. 7G, 4 N. W. 492.

—Constable of a castle. In English law. An officer having charge of a castle ; a warden, or keeper; otherwise called a “castellain."— Constable of England. (Called, also, “Mar- shal.") His office consisted in the care of the common peace of the realm in deeds of aims and matters of war. Lamb. Const 4.— Con- stable of Scotland. An officer who was for- merly entitled to command all the king's armies in the absence of the king, and to take cogni- sance of all crimes committed within four miles of the king’s person or of parliament the privy council, or any general convention of the states of the kingdom. The office was hereditary in the family of Errol, and was abolished by the 20 Geo. III. c. 43. Bell ; Ersk. Inst 1, 3, 37. —Constable of tbe exchequer. An officer mentioned in Fleta, lib. 2, c. 31.— High con- stable of England, lord. His office has been disused (except only upon great and solemn oc- casions, as the coronation, or the like) since the attainder of Stafford, Duke of Buckingham, in the reign of Henry VII.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Much Ado About Nothing, c. 1598]**

(paraphrase) Dogberry, the self-important and incompetent constable of the watch, whose malaprop orders turn every charge upside down — the constable as comic figure. (paraphrase)

Why: Entry defines the constable office. Dogberry is the canonical fictional constable; paraphrase marked rather than risking a half-remembered line.

## CONST ABLE WICK.

In English law. The territorial jurisdiction of a constable; as bailiwick is of a bailiff or sheriff. 5 Nev. & M. 261.

5e apparatus — Not carried into the 5th edition (1979).

## CONSTABULARIES.

An officer of horse; an officer having charge of foot or horse; a naval commander; an officer hav- ing charge of military affairs generally. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CONSTAT.

It Is clear or evident ; it ap- pears ; it is certain ; there is no doubt Non constat, it does not appear.

A certificate which the clerk of the pipe and auditors of the exchequer made, at the request of any person who intended to plead or move in that court for the discharge of anything. The effect of it was the certifying what appears ( constat ) upon record, touch- ing the matter in question. Wharton.

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## CONSTAT B’HUISSIEB.

In French law. An affidavit made by a huissicr, set- ting forth the appearance, form, quality,

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color, etc., of any article upon which a suit depends. Arg. Fr. Merc. Law, 554.

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### CONSTATE.

To establish, constitute, or ordain. “Constating instruments" of a cor- poration are Its charter, organic law, or the grant of powers to it See examples of the use of the term, Green’s Brice, Ultra Vires, p. 39; Ackerman v. Halsey, 37 N. J. Eq. 363.

5e apparatus — Not carried into the 5th edition (1979).

### CONSTITUENT.

A word used as a cor- relative to ‘‘attorney,” to denote one who

constitutes another his agent or invests the other with authority to act for him.

It is also used in the language of politics, as a correlative to “representative,” the con- stituents of a legislator being those whom be represents and whose interests he is to care for in public affairs ; .usually the electors of his district

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## G

### GON8TITUERE.

Lat To appoint, con- stitute, establish, ordain, or undertake. Used principally in ancient powers of attorney, and now supplanted by the English word “constitute.”

5e apparatus — Not carried into the 5th edition (1979).

## C

### CONSTITUIMUS.

A Latin term, signi- fying we constitute or appoint.

5e apparatus — Not carried into the 5th edition (1979).

### CONSTITUTED AUTHORITIES.

Of- ficers properly appointed under the consti- tution for the government of the people.

5e apparatus — Not carried into the 5th edition (1979).

### CONSTITUT'D).

In the civil law. An

imperial ordinance or constitution, distin- guished from Lew, Benatus-Consultum, and other kinds of law and having its effect from the sole will of the emperor.

An establishment or settlement Used of controversies settled by the parties without a trial.

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Calvin.

A sum paid according to agreement Du Cange.

In old English law. An ordinance or statute. A provision of a statute.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GONSTITUTIO  DOTIS.

Establishment of dower.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CONSTITUTION.

In pnblio law. The

organic and fundamental law of a nation or state, which may be written or unwritten, establishing the character and conception of its government laying the basic principles to which its internal life is to be conformed, organizing tbe government, and regulating, distributing, and limiting the functions of its different departments, and prescribing the extent and manner of the exercise of sovereign powers.

Iff a more general sense, any fundamental or Important law or edict; as the Novel Con- stitutions of Justinian; the Constitutions of Clarendon.

In American law. The written instru- ment agreed upon by the people of the Un- ion or of a particular state, as the absolute rule of action and decision for all depart- ments and officers of the government in re- spect to all the points covered by it, which must control until it shall be changed by the authority which established it, and in oppo- sition to which any act or ordinance of any such department or officer is null and void. Cooley, Const. Lim. 3.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Marbury v. Madison, 5 U.S. (1 Cranch) 137 (1803)]**

The entry's American-law paragraph states that any act of government in opposition to the constitution 'is null and void'; the case that made that nullity principle enforceable — establishing judicial review — is Marbury v. Madison.

Why: The entry states the supremacy/nullity principle (per Cooley); Marbury holds an act repugnant to the constitution void and declares it the court's duty to say so — the operative case behind the entry's abstract statem...

## CONSTITUTIONAL.

Consistent with the constitution; authorized by the constitu- tion; not conflicting with any

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provision of

the constitution or fundamental law of the state. Dependent upon a constitution, or se- cured or regulated by a constitution; as “constitutional monarchy," “constitutional rights.”

— Constitutional convention. A duly con- stituted assembly of delegates or representatives of the people of a state or nation for the pur- pose of framing, revising, or amending its con- stitution.—Constitutional liberty or free- dom. Such freedom as is enjoyed by the citi- zens of a country or state under the protection of its constitution; the aggregate of those per- sonal, civil, and political rights of the individual which are guarantied by the constitution and secured against .invasion by the government or any of its agencies. People v. Hurlbut, 24 Mich. 106, 9 Am. Rep. 106. — Constitutional law. (1) That branch of the public law of a state which treats of the organization and frame of government, the organs and powers of sover- eignty, the distribution of political and govern- mental authorities and functions, the fundamen- tal principles which are to regulate the rela- tions of government and subject, and which pre- scribes generally the plan and method according to which the public affairs of the state are to be administered. (2) That department of the science of law which treats of constitutions, their establishment, construction, and interpre- tation, and of the validity of legal enactments as tested by the criterion of conformity to the fundamental law. (3) A constitutional law is one which is consonant to. and agrees with, the constitution ; one which is not in violation of any provision of the constitution of the par- ticular state.—Constitutional officer. One whose tenure and term of office are fixed and defined by the constitution, as distinguished from the incumbents of offices created by the legislature. Foster v. Jones, 79 Va. 642, 52 Am. Rep. 637 ; People v. Scheu, 69 App. Div. 592, 69 N. Y. Supp. 597.

5e apparatus — Carried into the 5th edition (1979).

## CONSTITUTIONES.

Laws promulgat- ed, i. e., enacted, by the Roman Emperor. They were of various kinds, namely, the fol- lowing: (1) Edicta; (2) decreta; (3) re- seripta, called also, “epistolw.” Sometimes they were general, and Intended to form a precedent for other like cases ; at other times they were special, particular, or individual, < personales .) and not intended to form a prec- edent. The emperor had this power of Irre- sponsible enactment by virtue of a certain lex regia, whereby he was made the fountain of Justice and of mercy. Brown. ‘

Constitution cs tempore posterlores po- tions sunt his qnse ipsas prsecesserunt.

Dig. 1, 4, 4. Later laws prevail over those which preceded them.

5e apparatus — Not carried into the 5th edition (1979).

## CONSTITUTIONS OF CLARENDON.

See Clarendon.

5e apparatus — Carried into the 5th edition (1979).

## CONSTITUTOR.

In the civil law. One who, by a simple agreement, becomes respon- sible for the payment of

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another's debt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONSTITUTUM.

In the civil law. An agreement to pay a subsisting debt which ex- ists without any stipulation, whether of the promisor or another party. It differs from a stipulation In that it must be for an Existing debt Du Cange.

Constitution esse earn domum uni- enique nostrum d chore ezistinmri, ubi qnisqne sedes et tmbulas haberet, snsr- umque rerum constitutionem feeisset.

It Is settled that that is to be considered the home of each one of us where he may have his habitation and account-books, and where he may have made an establishment, of his business. Dig. 50, 16, 203.

5e apparatus — Not carried into the 5th edition (1979).

## CONSTRAINT.

This term is held to be exactly equivalent with “restraint” Ed- . mondson v. Harris, 2 Tenn. Ch. 427.

In Scotch law. Constraint means duress.

5e apparatus — Carried into the 5th edition (1979).

## CONSTRUCT.

To build; erect; put to- gether; make ready for use. Morse v. West- Port HO Mo. 502, 19 S. W. 831; Contas v. Bradford, 206 Pa. 291, 55 Atl. 989.

Constrnctio legis non faeit injnriam.

The construction of the law (a construction made by the law) works no injury. Co. Lltt 183; Broom, Max. 603. The law will make such a construction of an Instrument as not to Injure a party.

5e apparatus — Carried into the 5th edition (1979).

## CONSTRUCTION.

The process, or the art of determining the sense, real meaning, or proper explanation of obscure or ambigu- ous terms or provisions in a statute, written Instrument, or oral agreement, or the appli- cation of such subject to the case in question, by reasoning In the light derived from ex- traneous connected circumstances or laws or writings bearing upon the same or a con- nected matter, or by seeking and applying the probable aim and purpose of the pro- vision.

It Is to be noted that this term Is properly distinguished from interpretation, although the two are often used synonymously. In strictness, Interpretation Is limited to explor- ing the written text, while construction goes beyond and may call in the aid of extrinsic considerations, as above indicated.

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Strict and liberal construction. Strict construction Is construction of a statute or other Instrument according to its letter, which recog- nizes nothing that is not expressed, takes the language used in its exact and technical mean- ing, and admits no equitable considerations or implications. Paving Co. v. Watt. 51 La. Ann. 1345, 26 South. 70; Stanyan v. Peterborough, 60 N. II. 372, 46 Atl. 191. Liberal construction, on the other hand, expands the meaning of the statute to meet cases which are clearly within the spirit or reason of the law, or within the evil which it was designed tc remedy, provided such an interpretation is not inconsistent with the language used ; it resolves all reasonable doubts in favor of the applicability of the stat- ute to the particular case. Black. Interp. Laws, 282; Lawrence v. MeCalmont, 2 How. 449, 11

L. EM. 326; In re Johnson’s Estate. 98 Cal. 531, 33 Pae. 460, 21 L. R. A. 380; Shorey v. Wyckoff, 1 Wash. T. 351.

— Construction, court of. A court of equity or of common law, as the case may be, is called the court of construction with regard to wills, as opposed to the court of probate, whose duty is to decide whether an instrument be a will at all. Now, the court of probate may decide that

m given Instrument Is a will, and yet the court of construction may decide that it has no opera- tion, by reason of perpetuities, illegality, uncer- tainty, etc. Wharton.— Equitable construc- tion. A construction of a law, rule, or rem- edy which has regard more to the equities of the particular transaction or state of affairs in- volved than to the strict application of the rule or remedy ; that is, a liberal and extensive con- struction, as opposed to a literal and restrictive. Smiley v. Sampson, 1 Neb. 91.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Nehemiah 8:8, KJV]**

So they read in the book in the law of God distinctly, and gave the sense, and caused them to understand the reading.

Why: The construction of a written law — reading distinctly, giving the sense, causing understanding — performed on the Book of the Law itself. The entry's art, in its archetypal scene. (Narrative: no flag.)

## CONSTRUCTIVE.

That which Is estab- lished by the mind of the law in its act of construing facts, conduct, circumstances, or instruments; that which has not the char- acter assigned to it In its own essential na- ture, but acquires such character in conse- quence of the way in which it is regarded by a rule or policy of law ; hence, Inferred, im- plied, made out by legal interpretation. Mid- dleton y. Parke, 3 App. D. 0. 100.

— Constructive assent. An assent or consent imputed to a party from a construction or in- terpretation of his conduct; as distinguished from one which he actually expresses. — Con- structive authority. Authority inferred or assumed to have been given because of the grant of some other antecedent authority. Middleton v. Parke, 3 App. D. C. 160.— Constructive breaking into a bouse. A breaking made out by construction of law. As where a bur- glar

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gains an entry into a house by threats, fraud, or conspiracy. 2 Russ. Crimes, 9, 10.— Constructive crime. Where,, by a strained construction of a penal statute, it is made to include an act not otherwise punishable, it is said to be a “constnfctive crime," that is, one built up by the court with the aid of inference and implication. Ex parte McNulty, 77 Cal. 164, 19 Pac. 237, 11 Am. St. Rep. 257.— Con- structive taking. A phrase used in the law to characterize an act not amounting to an actual appropriation of chattels, but which shows an intention to convert them to his use: as if a person intrusted with the possession of goods deals with them contrary to the orders of the owner.

As to constructive "Breaking,” “Contempt,” “Contracts,” "Conversion,” “Delivery,” "Evic- tion,” “Fraud,” "Larceny,” “Malice," “No- tice,” "Possession,” “Seisin,” “Service of Process,” “Total Loss,” “Treason,” and “Trusts,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

### CONSTRUE.

To put together; to ar- range or marshal the words of an instru- ment To ascertain the meaning of lan- guage by a process of arrangement and in- ference. See Construction.

5e apparatus — Carried into the 5th edition (1979).

## G

### GONSTUPRATE.

To ravish, debauch, violate, rape. See Harper v. Delp, 3 Ind. 230; Koenig v. Nott, 2 Hilt (N. X.) 329.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die.

Why: The Mosaic statute on the exact crime the entry names — forced violation, with the penalty. The entry's concept in statutory form. (Moses' exposition, not first-person divine speech: flag off per the doubt rule.)

## C

### CONSUETUDXNARXUS.

In ecclesias- tical law. A ritual or book, containing the rites and- forms of divine offices, or the cus- toms of abbeys and monasteries.

5e apparatus — Not carried into the 5th edition (1979).

### CONSUETUDINES.

In old English law. Customs. Thus, consuetudines et assisa for- est ce, the customs and

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assise of the forest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONSUETUDINES FEUDORUM.

(Lat. feudal customs.) A compilation of the law of feuds or fiefs in Lombardy, made A. D. 1170.

5e apparatus — Not carried into the 5th edition (1979).

## CONSUETUDINIBUS ET SERVICIIS.

In old English law. A writ of right close, which lay against a tenant who deforced his' lord of the rent or service due to him. Reg. Orig. 159; Fitzb. Nat. Brev. 151.

5e apparatus — Not carried into the 5th edition (1979).

## CONSUETUDO.

Lat A custom; an established usage or practice. Co. Litt. 58. Tolls; duties; taxes. Id. 586.

— Consuetudo Anglicana. The custom of England ; the ancient common law, as distinguished from lex, the Roman or civil law. — Con- suetudo curiae. The custom or practice of a court Hardr. 141. — Consuetude mercator- u. Lat. The custom of merchants, the same with lex mercatoria.

Consuetudo contra rationem intro- duota potins nsnrpatio qnam consuetudo appellari debot. A custom introduced against reason ought rather to be called a “usurpation” than a "custom.” Co. Litt 113.

Consuetudo debet esse certa; nam in- eerta pro nullt babetur. Dav. 33. A custom should be certain; for an uncertain custom is considered null.

Consuetudo est altera lex. Custom is another* law. 4 Coke, 21.

Consuetudo est optimum interpres le- gum. 2 Inst. 18. Custom is the best ex- pounder of the laws.

Consuetudo et communis assuetudo vinoit legem non seriptam, si sit spe- cialis; ot interpretatur legem seriptam, si lea; sit generalls. Jenk. Cent. 273. Custom and common usage overcomes the un- written law, if it be special; and interprets the written law, if the law be general.

Consuetudo ex certa causa rationabili usitata privat eommunem legem. A cus- tom, grounded on a certain and reasonable cause, supersedes the common law. Litt. i 169; Co. Litt 113; Broom, Max. 919.

Consuetudo, lioet sit magnae auctorita- tis, nunquam tames, praejudioat mani- festo: verltatL A custom, though it be of great authority, should never prejudice mani- fest truth. 4 Coke, 18.

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**[Scripture] — Scripture**

**[Matthew 15:3, KJV]**

Why do ye also transgress the commandment of God by your tradition?

Why: The verse adjudicates custom-as-law — tradition weighed against commandment and found wanting where they conflict. It illuminates custom's place and limit as a source of law. (Jesus' own words: red-letter.)

## CONSUETUDINARY LAW.

Custom- ary law. Law derived by oral tradition from a remote antiquity. Bell.

Consuetudo loot observanda ost. Litt. f 169. The custom of a place is to be ob- served.

Consnetndo manor!! et loot obnmnda

Mi 6 Coke, 67. A custom of a manor and place Is to be observed.

Consnetndo neqne lnjnrli oriri neqne tolU potest. Lofft, 340. Custom can nei- ther arise from nor be taken away by in- jury

Consnetndo non trahitnr In eonse- qnentlsm. 3 Keb. 499. Custom is not drawn into consequence. 4 Jur. (N. S.) Ex. 139.

Consnetndo prsescripta et legitims vin- oit legem. A prescriptive and lawful cus- tom overcomes tiie law. Co. Litt 113; 4 Coke, 21.

Consnetndo regnl Anglise est lex Ang- llse. Jenk. Cent. 119. The custom of the kingdom of England is the law of England. See 2 Bl. Comm. 422.

Consnetndo semel reprobats non po- test amplins inducl. A custom once dis- allowed cannot be again brought forward, [or relied on.] Dav. 33.

Consnetndo tollit commnnem legem.

Co. Lltt. 336. Custom takes away the com- mon law.

Consnetndo rolentes dneit, lex nolen- tes trahit. Custom leads the willing, law compels [drags] the unwilling. Jenk. Cent 274.

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## CONSUL.

In Roman law. During the republic, the name “consul” was given to the chief executive magistrate, two of whom were chosen annually. The office was con- tinued under the empire, but its powers and prerogatives were greatly reduced. The name is supposed to have been derived from consulo, to consult, because these officers con- sulted with the senate on administrative measures.

In old English law. An ancient title of an earl.

In international law. An officer of a commercial character, api>ointed by the dif- ferent states to watch over the mercantile interests of the appointing state and of its subjects in foreign countries. There are usually a number of consuls in every mari- time country, and they are usually subject to a chief consul, who Is called a “consul general.” Schunlor v. Russell, 83 Tex. 83, 18 S. W. 484; Seidel v. Peschkaw, 27 N. J. Law, 427 ; Sartori v. Hamilton, 13 N. J. Law, 107 ; The Anne, 3 Wheat. 445, 4 L. Ed. 428.

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The word “consul” has two meanings: (1) It denotes an officer of a particular grade in the consular service ; (2) It has a broader

generic sense, embracing all consular officers. Dainese v. U. S., 15 Ct. Cl. 64.

The official designations employed throughout this title shall be deemed to have the following meanings, respectively: First. “Consul general, "consul,” and "commercial agent” shall be deem- ed to denote full, principal, and permanent con- sular officers, as distinguished from subordinates and substitutes. Second. “Deputy-consul” and “consular agent” shall be deemed to denote con- sular officers subordinate to such principals, ex- ercising the powers and performing the duties within the limits of their consulates or com- mercial agencies respectively, the former at the same ports or places and the latter at ports or places different from those at which such prin- cipals are located respectively. Third. “Vice- consuls" and “vice-commercial agents” shall be deemed to denote consular officers who shall be substituted, temporarily, to fill the places of consuls general, consuls, or commercial agents, when they shall be temporarily absent or re- lieved from duty. Fourth. “Consular officer” shall be deemed to include consuls general, con- suls, commercial agents, deputy-consuls, vice- consuls, vice-commercial agents, and consular agents, and none others. Fifth. “Diplomatic officer” shall be deemed to include ambassadors, envoys extraordinary, ministers plenipotentiary, ministers resident, commissioners charges d’af- faires, agents, and secretaries of legation, and none others. Rev. St. U. S. § 1674 (U. S. Comp. St. 1901, p. 1150.)

5e apparatus — Not carried into the 5th edition (1979).

## CONSULAR COURTS.

Courts held by the consuls of one country, within the ter- ritory of another, under authority given by treaty, for the settlement of civil cases be- tween citizens of the country which the con- sul represents. In some instances they have also a criminal jurisdiction, but in this re- spect are subject to review by the courts of the home government. See Rev. St. U. S. i 4083 (U. S. Comp. St. 1901, p. 2768.)

5e apparatus — Not carried into the 5th edition (1979).

## CONSULTA ECCLESIA.

In ecclesiastic- al law. A church full or provided for. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONSULTARY RESPONSE.

The opin- ion of a court of law on a special case.

5e apparatus — Not carried into the 5th edition (1979).

## CONSULTATION.

A writ whereby a cause which has been wrongfully removed by prohibition out of an ecclesiastical court to a temporal court Is returned to the ecclesias- tical court Phillim. Ecc. Law, 1439.

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A conference between the counsel engaged In a case, to discuss its questions or arrange the method of conducting it

In French law. The opinion of counsel upon a point of law submitted to them.

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## CONSULTO.

Lat. In the civil law. De- signedly ; intentionally. Dig. 28, 41.

5e apparatus — Not carried into the 5th edition (1979).

## CONSUMMATE.

Completed; as distin- guished from initiate, or that which is mere- ly begun. The husband of a woman seised of an estate of Inheritance becomes, by the birth of a child, tenant by the curtesy in- itiate, and may do many acts to charge the lands, but his estate is not consummate till the death of the wife. 2 Bl. Comm. 126, 128 ; Co. Lltt 30a.

5e apparatus — Not carried into the 5th edition (1979).

## CONSUMMATION.

The completion of a thing ; the completion of a marriage between two affianced persons by cohabitation. Shar- on v. Sharon, 79 Cal. 633, 22 Pac. 26.

5e apparatus — Not carried into the 5th edition (1979).

## CONTAGIOUS DISEASE.

One capable of being transmitted by mediate or Immediate contact. See Grayson y. Lynch, 163 U. S. 468, 16 Sup. Ct 1064, 41 L. Ed. 230; Stryker t. Crane. 33 Neb. 690, 50 N. W. 1132 ; Pierce y. Dillingham, 203 111. 148, 67 N. E. 846, 62

L. R. A. 888. See Infection.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Boccaccio, The Decameron, c. 1353]**

(paraphrase) The Decameron is framed by the 1348 plague in Florence — contagion emptying the city and driving the ten storytellers into the hills, where the tales are told. (paraphrase)

Why: Entry defines contagious disease as transmissible by contact. The plague frame is the canonical literary instance of contagion as plot-engine; paraphrase marked.

## CONTANGO.

In English law. The com- mission received for carrying over or putting off the time of execution of a contract to deliver stocks or pay for them at a certain time. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CONTEK.

L. Fr. A contest, dispute, dis- turbance, opposition. Britt c. 42; Kelkam. Conteckours ; brawlers; disturbers of the peace. Britt c. 29.

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## CONTEMNER.

One who has committed contempt of court Wyatt v. People, 17 Colo. 252, 28 Pac. 961.

OONTEMPIiATION. The act of the mind in considering with attention. Continued attention of the mind to a particular sub- ject. Consideration of an act or series of acts with the intention of doing or adopting them. The consideration of an event or state of facts with the expectation that it will transpire.

— Contemplation of bankruptcy. Contem- plation of the breaking up of one's business or an inability to continue it; knowledge of, and action with reference to, a condition of bank- ruptcy or ascertained insolvency, coupled with an intention to commit what the law declares to be an "act of bankruptcy," or to make pro- vision against the consequences of insolvency, or to defeat the general distribution of assets which would take place under a proceeding in bankruptcy. Jones v. Howland, 8 Mete. (Mass.) 384, 41 Am. Dec. 525 ; Paulding v. Steel Co., 94 N. Y. 339; In re Duff (D. C.) 4 Fed. 519; Morgan v. Brand rett, 5 Barn. & Aid. 289 ; Win- sor v. Kendall, 30 Fed. Cas. 322; Buckingham v. McLean, 13 How. 167, 14 L. Ed. 90; In re Carmichael (D. C.) 96 Fed. 594.— Contempla- tion of death. The apprehension or expecta- tion of approaching dissolution; not that gen- eral expectation which every mortal entertains, but the apprehension which arises from some presently existing sickness or physical condition or from some impending danger. As applied to transfers of property, the phrase "in contempla- tion of death" is practically equivalent to "causa mortis." In re Cornell's Estate, 66 App. Div. 162. 73 N. T. Supp. 32 ; In re Edgerton's Es- tate, S5 App. Div. 125, 54 N. Y. Supp. 700; In re Baker s Estate, 83 App. Div. 530, 82 N.

Y. Supp. 390. — Contemplation of insolven- cy. Knowledge of, and action with reference to, an existing or contemplated state of insol- vency, with a design to make provision against its results or to defeat the operation of the in- solvency laws. Robinson v. Bank, 21 N. Y. 411; Paulding v. Steel Co., 94 N. Y. 338; Heroy v. Kerr. 21 How. Prae. 420 : Anstedt v. Bentley, 61 Wis. 629, 21 N. W. 807.

5e apparatus — Not carried into the 5th edition (1979).

## CONTEMPORANEA EXPOSITIO.

Lnt. Contemporaneous exposition, or construc- Bl.Law Dict.(2d Ed.)— 17

tlon; a construction drawn from the time when, and the circumstances under which, the subject-matter to be construed, as a statute or custom, originated.

Contemp oruea expositio eat optima et fortissimo in lege. Contemporaneous ex- position is the best and strongest in the law. 2 Inst. 11. A statute is best explained by following the construction put upon it by judges who lived at the time it was made, or soon after. 10 Coke, 70; Broom, Max. 682.

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## CONTEMPT.

Contumacy ; a willful dis- regard of the authority of a court of' justice or legislative body or disobedience to its law- ful orders.

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Contempt of court is committed by a per- son who does any act in willful contraven- tion of its authority or dignity, or tending to impede or frustrate the administration of Jus- tice, or by one who, being under the court's authority ns a party to a proceeding therein, willfully disobeys its lawful orders or fulls to comply with an undertaking which he has given. Welch v. Barber, 52 Conn. 147, 52 Am. Rep. 567 ; Lyon v. Lyon, 21 Conn. 198 ; Kissel v. Lewis, 27 Ind. App. 302, 61 N. E. 209; Yates v. Lansing, 9 Johns. (N. Y.) 395, 6 Am. Dec. 290 ; Stuart v. People, 4 III. 395 ; Gandy v. State, 13 Neb. 445, 14 N. W. 143.

Classification. Contempts are of two kinds, direct and constructive. Direct contempts are those committed in the immediate view and presence of the court (such as insulting language or acts of violence) or so near the presence of the court as to obstruct or interrupt the due and orderly course of proceedings. These are punishable summarily. They are also called “criminal” contempts, but that term is better used in contrast with "civil” contempts. See infra. Ex parte Wright. 65 Ind. 508; State v. McClaugherty, 33 W. Va. 250, 10 S. E. 407 ; State v. Shepherd, 177 Mo. 295, 76 S. W. 79, 99 Am. St Rep. 624 ; Indianapolis Water Co. v. American Strawboard Co. (C. C.) 75 Fed. 975; In re Dill, 32 Kan. 668, 5 Pac. 39, 49 Am. Rep. 505; State v. Hansford, 43 W. Va. 773, 28 S. E. 791 ; Androscoggin & K. R. Co. v. Androscoggin R. Co., 49 Me. 392. Construc- tive (or indirect) contempts are those which- arise from matters not occurring in or near the presence of the court, but which tend to ob- struct or defeat the administration of justice, and the term is chiefly used with reference to the failure or refusal of a party to obey a law- ful order, injunction, or decree of the court lay- ing upon him a duty of action or forbearance. Androscoggin & K. R. Co. v. Androscoggin R. Co., 49 Me. 392; Cooper v. People, 13 Colo. 337, 22 Pac. 790, 6 I* R. A. 430; Stuart v. People, 4 111. 395 ; McMakin v. McMakin. 68 Mo. App. 57. Constructive contempts were for- merly called "consequential,” and this term is still in occasional use.

Contempts are also classed as civil or crim- inal. The former are those quasi contempts which consist in the failure to do something which the party Is ordered by the court to do for the benefit or advantage of another party to the proceeding before the court, while criminal contempts are acts done in disrespect of the court or its process or which obstruct the ad- ministration of justice or tend to bring the court into disrespect. A civil contempt is not an offense against the dignity of the court, but against the party in whose behalf the mandate of the court was issued, and a fine is imposed

for his indemnity. But criminal contempts are offenses or injuries offered to the court, and a fine or imprisonment is imposed upon the con- temnor for the purpose of punishment Wyatt v. People, 17 Colo. 252, 28 Pac. 901 ; People v. McKane, 78 Hun, 154, 28 N. Y. Supp. 981; Schreiber v. Mfg. Co., 18 App. DJy. 158, 45 N.

Y. Supp. 442: Eaton Rapids v. Horner, 126 Mich. 5§l 85 N. W. 264 ; In re Nevitt, 117 Fed. 448, 54 C. C. A. 622; State v. Shepherd. 177 Mo. 205, 76 S. W. 79, 99 Am. St Rep. 624. LATURE, or PARLIAMENT. Whatever obstructs or tends to obstruct the due course of proceeding of either house, or grossly reflects on the character of a member of ei- ther house, or imputes to him what it would be a libel to impute to an ordinary person, is a

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contempt of the house, and thereby a breach of privilege. Sweet

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**[Scripture] — Scripture**

**[Exodus 22:28, KJV]**

Thou shalt not revile the gods, nor curse the ruler of thy people.

Why: The divine-law analogue of contempt — reviling the judge/ruler forbidden. The entry's concept (disregard of lawful authority) in its oldest statutory form. (Book of the Covenant, the LORD's speech: red-letter.)

## CONTEMPTIBILITER.

Lat Con- temptuously.

In old English law. Contempt, con- tempts. Fleta, lib. 2, a 60, § 35.

5e apparatus — Not carried into the 5th edition (1979).

## CONTENTIOUS.

Contested; adversary; litigated between adverse or contending par- ties; a Judicial proceeding not merely ea parte in Its character, but comprising attack and defense as between opposing parties, 1b so called. The litigious proceedings in ecclesi- astical courts are sometimes said to belong to its "contentious” jurisdiction, in contradis- tinction to what is called its “voluntary” Ju- risdiction, which is exercised In the grant- ing of licenses, probates of wills, dispensa- tions, faculties, etc.

—Contentions jurisdiction. In English ec- clesiastical law. That branch of the jurisdic- tion of the ecclesiastical courts which is exer- cised upon adversary or contentious proceedings. —Contentions possession. In stating the rule that the possession of land necessary to give rise to a title by prescription must be a “contentious" one. it is meant that it must be based on opposition to the title of the rival claimant (not in recognition thereof or subordi- nation thereto) and that the opposition must be based on good grounds, or such as might be made the subject of litigation. Railroad Co. v. McFarlan, 43 N. J. Law, 621.

5e apparatus — Not carried into the 5th edition (1979).

## CONTENTMENT, CONTENEMENT.

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man's countenance or credit, which he has together with, and by reason of, his freehold ; or that which is necessary for the support and maintenance of men, agreeably to their several qualities or states of life. Wharton ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONTENTS.

The contents of a promis- sory note or other commercial instrument or chose in action means the specific sum nam- ed therein and payable by the terms of the instrument. Trading Co. v. Morrison, 178 U.

S. 262, 20 Sup. Ct. 869, 44 L. Ed. 1061 ; Sere v. Pitot, 6 Cranch, 335, 3 L. Ed. 240; Simons v. Paper Co. (C. C.) 33 Fed. 195; Barney v. Bank, 2 Fed. Oas. 894 ; Corbin v. Black Hawk

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County, 105 U. S. 659, 26 L. Ed. 1136.

— Contents and not contents. In parlia- mentary law. The "contents” are those who,

in the house of lords, express assent to a bill ; the “not” or "non contents” dissent. May, Pari. Law, cc. 12, 357.— “Contents unknown.’’ Words sometimes annexed to a bill of lading of goods in cases. Their meaning is that the mas- ter only means to acknowledge the shipment, in good order, of the cases, as to their external condition. Clark v. Barnwell, 12 How. 273, 13

L. Ed. 985; Miller v. Railroad Co., 90 X_Y. 433, 43 Am. Rep. 179 ; The Columbo, 6 Fed. Cas. 178.

5e apparatus — Not carried into the 5th edition (1979).

## CONTERMINOUS.

Adjacent; adjoin- ing; having a common boundary; cotermi- nous.

5e apparatus — Not carried into the 5th edition (1979).

## CONTEST.

To make defense to an ad- verse claim in a court ,of law ; to oppose, re- sist, or dispute the case made by a plaintiff. Pratt v. Breckinridge, 112 Ky. 1, 65 S. W. 136; Parks v. State, 100 Ala. 634, 13 South. 756.

— Contestation of suit. In an ecclesiastical cause, that stage of the suit which is reached when the defendant has answered the libel by giving in an allegation. — Contested election. This phrase has no technical or legally defined meaning. An election may be said to be con- tested whenever an objection is formally urged against it which, if found to be true in fact, would invalidate it. This is true both as to ob- jections founded upon some constitutional pro- vision and to such as are based on statutes. Robertson v. State, 109 Ind. 116, 10 N. E. 600.

5e apparatus — Not carried into the 5th edition (1979).

## CONTESTATIO LITIS.

In Roman law. Contestation of suit; the framing an issue; joinder in issue. The formal act of both the parties with which the proceedings in jure were closed when they led to a ju- dicial investigation, and by which the neigh- bors whom the parties brought with them were called to testify. Mackeld. Rom. Law, i 219.

In old English law. Coming to an issue ; the issue so produced. Crabb, Eng. Law, 216.

Conteatatio litis eget tennlnos oontra- dictarios. An issue requires terms of con- tradiction. Jenk. Cent. 117. To constitute an issue, there must be an affirmative on one side and a negative on the other.

5e apparatus — Not carried into the 5th edition (1979).

## CONTEXT.

The context of a particular sentence or clause in a statute, contract, will, etc., comprises those parts of the text which immediately precede and follow it. The con- text may

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sometimes be scrutinized, to aid in the interpretation of an obscure passage.

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**[Law] — Law**

**[Law: contextual construction — each clause of a statute, contract, or will is read in light of the whole text]**

The entry's definition states the interpretive rule itself: an obscure passage in a statute, contract, or will is read in light of the text immediately surrounding it — the contextual-construction canon that a provision is construed as part of the whole instrument, not in isolation.

Why: Genuine because the entry defines context as the tool for interpreting obscure passages; the canon is that exact practice, stated as law rather than imported from outside. Nothing is forced: the note restates the entr…

## CONTIGUOUS.

In close proximity ; in actual close contact. Touching; bounded or traversed by. The term is not synonymous with "vicinal.” Plaster Co. v. Campbell, 89 Va. 396, 16 S. E. 274; Bank v. Hopkins. 47 Kan. 580, 28 Pac. 606, 27 Am. St. Rep. 309; Raxedale v. Seip, 32 La. Ann. 435; Arkell v. Insurance Co., 69 N. Y. 191, 25 Am. Rep. 168.

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## CONTINENCIA.

In Spanish law. Con- tlnency or unity of the proceedings in a cause. White, New Recop. b. 3, tit. 6, c. L

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## COHTINENS.

In the Soman law. Continuing ; bolding together. Adjoining buildings were said to be continents. 1

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## CONTINENTAL.

Pertaining or relating to a continent; characteristic of a continent; as broad in scope or purpose as a continent. Continental Ins. Co. v. Continental Fire Ass’n (C. C.) 96 Fed. 848.

— Continental congress. The first national legislative assembly in the United States, which met in 1774, in pursuance of a recommendation made by Massachusetts and adopted by the other colonies. In this congress all the colonies were represented except Georgia. The delegates were in some cases chosen by the legislative assemblies in the states ; in others by the people directly. The powers of the congress were un- defined, but it proceeded to take measures and pass resolutions which concerned the general welfare and had regard to the inauguration and prosecution of the war for independence. Black, Const. Law (8d Ed.) 40 ; 1 Story, Const. $f 198- 217.— Continental currency. Paper money issued under the authority of the continental congress. Wharton v. Morris, 1 Dali. 125, 1 L. Ed. 65.

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## C ONTONENTIA.

In old English prac- tice. Continuance or connection. Applied to the proceedings In a cause. Bract fol. 362b.

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## CONTINGENCY.

An event that may or may not happen, a doubtful or uncertain future event The quality of being contin- gent

A fortuitous event, which comes without design, foresight, or expectation. A con- tingent expense must be deemed to be an ex- pense depending upon some future uncertain event. People v. Yonkers, 39 Barb. (N. Y.) 272.

— Contingency of a process. In Scotch law. Where two or more processes are so connected that the circumstances of the one are likely to throw light on the others, the process first en- rolled is considered as the leading process, and those subsequently brought into court, if not brought in the same division, may be remitted to it, ob contingentiam, on account of their nearness or proximity in character to it. The effect of remitting processes in this manner is merely to bring them before the same division of the court or same lord ordinary. In other respects they remain distinct. Bell.— Gontin- gaty with double aspect. A remainder is said to be "in a contingency with double as- pect,” when there is another remainder limited on the same estate, not in derogation of the first, but as a substitute for it in case it should fail. Fearne, Bern. 373.

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## CONTINGENT.

Possible, but not assur- ed; doubtful or uncertain, conditioned upon the occurrence of some future event which Is Itself uncertain, or questionable. Verdler v. Roach, 96 Cal. 467, 31 Pac. 554.

This term, when applied to a use, remain- der. devise, bequest or other legal right or interest implies that no present interest ex- ists, and that whether such interest or right ever will exist depends upon a future uncertain event. Jemlson v. Blowers, 5 Barb. (N. Y.) 692.

— Contingent claim. One which has not ac- crued and which is dependent on the happening of some future event. Hospes v. Car Co., 48 Minn. 174, 50 N. W. 1117, 15 L. R. A. 470, 31 Am. St. Rep. 637 ; Austin v. Snveland's Estate, 77 Wis. 108, 45 N. W. 955; Downer v. Top- liff, 19 Vt. 399 ; Stichter v. Cox, 62 Neb. 532, 72 N. W. 848; Clark v. Winchell, 53 Vt. 408. — Contingent estate. An estate which de- pends for its effect upon an event which may or may not happen; as an estate limited to a person not in ette, or not yet bom. 2 Crabb, Real Prop. p. 4, S 946; Haywood v. Shreve, 44 N. J. Law, 94: Wadsworth v. Murray, 29 App. Div. 191, 51 N. Y. Supp. 1038; Thornton v. Zea, 22 Tex. Civ. App. 509, 55 S. W. 798; Hopkins v. Hopkins, 1 Hun, 354.— Contingent Interest in personal property. It may be defined as a future interest not transmissible to the representatives of the party entitled there- to, in case he

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dies before it vests in possession. Thus, if a testator leaves the income of a fund to his wife for life, and the capital of the fund to be distributed among such of bis children as shall be living at her death, the interest of each child during the widow’s life-time is con- tingent, and in case of his death is not trans- missible to his representatives. Mosley & Whit- ley.—Contingent UabiUty. One which is not now fixed ana absolute, but which will become so in case of the occurrence of some future and uncertain event. Downer v. Curtis, 25 Vt. 650; Bank v. Hingham Mfg. Co., 127 Mass. 563; Haywood v. Shreve. 44 N. 3. Law, 94; Steele v. Graves, 68 Ala. 21.

As to contingent “Damages,” “Legacy," “Limitation,” “Remainder,” “Trust,” and "Use,” see those titles.

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**[Law] — Law**

**[Law: Rule Against Perpetuities — a contingent interest must vest within lives in being plus 21 years]**

Contingent estates and interests — the entry's core subject — are governed by the Rule Against Perpetuities: no contingent interest is valid unless it must vest, if at all, within lives in being plus twenty-one years.

Why: Genuine because the entry defines contingent estates, contingent interests in personalty, and contingent remainders at length; the perpetuities rule is the controlling validity test for exactly those interests, so it…

## CONTINUAL CLAIM.

In old English law. A formal claim made by a party enti- tled to enter upon any lands or tenements,, but deterred from such entry by menaces, or bodily fear, for the purpose of preserving or keeping alive his right. It was called “con- tinual,” because It was required to be re- peated once In the space of every year and day. It had to be made as near to the land as the party could approach with safety, and, when made. in due form,' had the same effect with, and In all respects amounted to, a legal entry. Lltt. {§ 419-423; Co. Lltt. 250a; 3 Bl. Comm. 175.

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## CONTINUANCE.

The adjournment or postponement of an action pending in a court, to a subsequent day of the same or another term. Com. v. Maloney, 145 Mass. 205, 13 N. E. 482; State v.' Underwood, 76 Mo. 630.

Also the entry of a continuance made up- on the record of the court, for the purpose of formally evidencing the postponement, or of connecting the parts of the record so as to make one continuous whole.

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## CONTINUANDO.

In pleading. A form of allegation in which the trespass, criminal offense, or other wrongful act complained of is charged to have been committed on a specified day and to have

"continued” to the present time, or is averred to have been

committed at dlrers days and times within a given period or on a specified day and on divers other days and times between that day and another. This is called “laying the time with a continuando.” Benson v. Swift, 2 Mass. 52 ; People v. Sullivan, 9 Utah, 195, 83 Pac. 701.

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## CONTINUING.

Enduring; not terminat- ed by a single act or fact; subsisting for a definite period or intended to cover or apply to successive similar obligations or occur- rences.

As to continuing “Consideration,” "Cove- nant,” “Damages,” “Guaranty,” “Nuisance,” and “Offense,” see those titles.

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## CONTINUOUS.

Uninterrupted ; unbro- ken ; not intermittent or occasional ; so per- sistently repeated at short intervals as to constitute virtually an unbroken series. Black v. Canal Co., 22 N. J. Eq. 402 ; Ilofer's Appeal, 116 Pa. 360, 9 Atl. 441 ; Ingraham v. Hough, 46 N. C. 43.

— Continuous adverse use. Is interchange- able with the term “uninterrupted adverse use.” Davidson v. Nicholson, 59 Ind. 411. — Continu- ous Injury. One recurring at repeated inter- vals, so as to be of repeated occurrence; not necessarily an injury that never ceases. Wood v. Sutcliffe, 8 Eng. Law & Eq. 217.

As to continuous “Crime” and “Ease- ments," see those titles.

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**[Law] — Law**

**[Law: adverse possession — possession must be actual, open, hostile, exclusive, and continuous for the statutory period]**

The entry's 'continuous adverse use' sub-definition states one of the classic elements of adverse possession: possession must be continuous and uninterrupted for the full limitations period to ripen into title.

Why: Genuine because the entry itself defines 'continuous adverse use' as interchangeable with 'uninterrupted adverse use' in the adverse-possession context; the note names the doctrine the sub-entry belongs to. No force-f…

## CONTRA.

Against, confronting, oppo- site to; on the other hand; on the contrary. The word is used in many Latin phrases, as appears by the following titles. In the books qf reports, contra, appended to the name of a judge or counsel, indicates that he held a view of the matter in argument contrary to that next before advanced. Also, after cita- tion of cases in support of a position, contra is often prefixed to citations of cases op- posed to it.

— Contra bonus mores. Against good morals. Contracts contra bonos mores are void. — Con-, tra formam collation!*. In old English law. A writ that issued where lands given in per- petual alms to lay houses of religion, or to an abbot and convent, or to the warden or

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master of an hospital and his convent, to find certain poor men with necessaries, and do divine serv- ice, etc., were alienated, to the disherison of the house and church. By means of this writ the donor or his heirs could recover the lands. Reg. Orig. 238; Fitzh. Nat. Brev. 210.— Contra formam doni. Against the form of the grant. See Fobmedon.— Contra formam f eoffa- menti. In old English law. A writ that lay for the heir of a tenant, enfeoffed of certain lands or tenements, by charter of feoffment from a lord to make certain services and suits to his court, who was afterwards distrained for more services than were mentioned in the charter. Reg. Orig. 176; Old Nat Brev. 162.— Contra formam statutl. In criminal pleading. (Con- trary to the form of the statute in such case made and provided.) The usual conclusion of every indictment, etc., brought for an offense created by statute.— Contra Jus 'belli. Lat. Against the law of war. 1 Rent. Comm. 6.— Contra Jns commune. Against common right or law ; contrary to the rule of the common law. Bract, fol. 486.— Contra legem terras. Against the law of the land.— Contra omnes gentes. Against all people. Formal words in old covenants of warranty. Fleta, lili. 3, c. 14, f 11. — Contra paoem. Against the peace. A phrase used in the Latin forms of indictments, and also of actions for trespass, to signify that the offense alleged was com- mitted against the public peace, i. e., involved a breach of the peace. The full formula was contra pacem domini regia, against the peace of the lord the king. In modern pleading, in this country, the phrase “against the peace of the commonwealth” or “of the people” is used.— Contra proferentem. Against the party who proffers or puts forward a thing.— Contra tabula*. In the civil law. Against the will, (testament.) Dig. 37. 4.— Contra vadium et plegium. In old English law. Against gage and pledge. Bract fol. 156.

Contra legem faelt qui Id fault quod lex prohibit; in f random vero qui, sal vis verbis legia, sententiam ejus clremm- venit. He does contrary to the law who does what the law prohibits; he acts In fraud of the law who, the letter of the law being Inviolate, uses the law contrary to Its intention. Dig. 1, 3, 29.

Contra negantem principle non est disputandnm. There is no disputing against one who denies first principles. Co. Litt. 343.

Contra non valentem agere nulla ear- rit praescriptio. No prescription runs against a person unable to bring an action. Broom, Max. 903

Contra veritatem lex nnnqnam allquid permittlt. The law never suffers anything contrary to truth. 2 Inst 252.

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**[Law] — Law**

**[Maxim: Contra proferentem — ambiguity construed against the drafter]**

Contra proferentem: an ambiguity in a contract or instrument is construed against the party who drafted or proffered it.

Why: Genuine: the entry lists 'contra proferentem' among the phrases under this headword; the maxim is the operative construction rule it names. Standard form quoted, matching the entry's own phrase.

**[Maxim: Contra non valentem agere nulla currit praescriptio]**

Contra non valentem agere nulla currit praescriptio: no prescription (limitations period) runs against

one unable to bring an action — the tolling principle behind infancy, incapacity, and concealment exceptions.

Why: Genuine: the entry quotes this maxim verbatim (citing Broom, Max. 903); the note explains the tolling doctrine it states. Nothing added beyond what the maxim itself says.

**[Maxim: fraud of the law — Dig. 1.3.29]**

Contra legem facit qui id facit quod lex prohibet; in fraudem vero qui, salvis verbis legis, sententiam ejus circumvenit: he acts contrary to the law who does what the law prohibits; he acts in fraud of the law who, keeping the letter intact, defeats its intent — the Roman root of the modern doctrine that transactions in fraud of a statute are void.

Why: Genuine: the entry quotes this Digest maxim in full; the note identifies it as the classical statement of the fraud-on-the-statute doctrine. The maxim is doing the work, not the annotator.

## CONTRABAND.

Against law or treaty ; prohibited. Goods exported from or Im- ported Into a country against its laws. Brande. Articles, the importation or expor- tation of which is prohibited by law. P. Enc.

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**[Humanity] — Humanity / Fiction & Film**

**[William Friedkin, The French Connection, 1971]**

The film's engine is a contraband shipment in exactly the entry's sense: heroin smuggled from France into the United States in defiance of American law, pursued by detectives Popeye Doyle and Buddy Russo. (paraphrase) (paraphrase)

Why: Contraband = goods whose importation the law prohibits; the film dramatizes precisely that object — a prohibited shipment in transit — rather than using 'contraband' as set dressing.

## CONTRABAND OF WAR.

Certain classes of merchandise, such as arms and ammunition, which, by the rules of interna- tional law, cannot lawfully be furnished or carried by a neutral nation to either of two belligerents; if found in transit in neutral vessels, such goods may be seized and con- demned for violation of neutrality. The Pet- erhoff, 5 Wall. 5a 18 L. Ed. 564 ; Richardson v. Insurance Co., 6 Mass. 114, 4 Am. Dec. 92.

A recent American author on international law says that, “by the term ‘contraband of war,’ we now understand a class of articles of commerce which neutrals are prohibited from furnishing to either one of the belligerents, for the reason that, by so doing, injury is done to the other belligerent ;” and he treats of the sub- ject, chiefly, in its relation to commerce upon the high seas. Hall. Int. Law, 570, 592; El- rod v. Alexander, 4 Heisk. (Tcnn.) 345.

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**[Law] — Law**

**[The Peterhoff, 5 Wall. 58 (1866)]**

Neutral vessels carrying contraband of war to a belligerent are subject to capture and condemnation as prize — the rule the entry states, on the authority it cites.

Why: Genuine because the entry itself cites The Peterhoff for the seizure-and-condemnation rule; the footnote carries the entry's own authority forward in clean form. Volume and reporter come from the entry; the case is a...

**[Humanity] — Humanity / Fiction & Film**

**[Victor Fleming, Gone with the Wind, 1939]**

Rhett Butler's trade as a blockade-runner — carrying goods through the Union blockade to the Confederate belligerent for profit — dramatizes contraband-of-war commerce: merchandise furnished to a belligerent in wartime, liable to seizure in transit. (paraphrase) (paraphrase)

Why: The entry concerns wartime goods furnished to belligerents and seized in transit; Rhett's blockade-running is that commerce in narrative form. Borderline noted: Rhett is a Confederate partisan rather than a neutral, b...

## CONTKACAUSATOR.

A criminal ; one prosecuted for a crime.

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## CONTRACT.

Ad agreement, upon suf- ficient consideration, to do or not to do a particular thing. 2 Bl. Comm. 442; 2 Kent, Oomiu. 449. Justice v. Lang, 42 N. T. 496, 1 Am. Rep. 076; Edwards v. Kearzey, 96

U. S. 599, 24 L. Ed. 793; Canterberry v. Miller, 76 111. 355.

A covenant or agreement between two or more persons, with a lawful consideration or cause. Jacob.

A deliberate engagement between com- petent parties, ui>on a legal consideration, to do. or abstain from doing, some act Whar- ton.

A contract or agreement is either where a promise is made on one side and assented to on the other ; or where two or more persons enter into engagement with each other by a promise on either side 2 Steph. Comm. 54.

A contract is an agreement by which one person obligates himself to another to give, to do, or permit, or not to do, something ex- pressed or implied by such agreement Civ. Code La. art. 1761; Fisk v. Police Jury, 34 La. Ann. 45.

A contract is an agreement to do or not to do a certain thing. Civ. Code Cal. « 1549.

A contract is an agreement between two or more parties for the doing or not doing of some specified thing. Code Ga. 1882, « 2714.

A contract is an agreement between two or more persons to do or not to do a particular thing ; and the oblir/atinn of a contract is found in the terms in which the contract is expressed, and is the duty thus assumed by the contract- ing parties respectively to perform the stipula- tions of such contract. When that duty is rec- ognized and enforced by the municipal law. it is one of perfect, and when not so recognized and enforced, of imperfect, obligation. Barlow v. Greogory, 31 Conn. 265.

The writing whicl) contains the agree- ment of parties, with the terms and condi- tions, and which serves as a proof of the obligation.

Classification. Contracts may be classified on several different methods, according to the element in them which is brought into promi- nence. The usual classifications are as follows: Record, specialty, simple. Contracts of record are such as are declared and adjudicat- ed by

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courts of competent jurisdiction, or enter- ed on their records, including judgments, re- cognizances. and statutes staple. Hardeman v. Downer. 39 Ga. 425. These are not properly speaking contracts at all. though they may be enforced by action like contracts. Specialties, or special contracts, are contracts under seal, such as deeds and bonds. Ludwig v. Hungart, 26 Misc. Rep. 247. 56 N. Y. Supp. 51. All others are included in the description “simple” contracts; that is. a simple contract is one that is not a contract of record and not under seal ; it may be either written or ora!, in either case it is called a “parol” contract, the dis- tinguishing feature being the lack of a seal. Webster v. Fleming, 178 111. 140, 52 N. E. 975 ; Perrine v. Cheeseman, 11 N. ,T. Law. 177, 19 Am. Dec. 388; Corcoran v. Railroad Co., 20 Mmc. Rep 197. 45 N. Y. Supp. 861 : Justice ▼. Lang, 42 N. Y. 493, 1 Am. Rep. 576.

fixpr*** sad implied. An express contract is an actual agreement of the parties, the terms of which are openly uttered or declared at the tune of making it being stated in distinct and explicit language, either orally or in writing.

2 Bl. Comm. 443 ; 2 Kent, Comm. 450; Linn V. Ross, 10 Ohio, 414, 36 Am. Dec. 95 ; Thomp- son v. Woodruff, 7 Cold. (Tenn.) 401 ; Grevall v. Whiteman, 32 Misc. Rep. 279, 65 N. Y. Supp. 974. An implied contract is one not created or evidenced by the explicit agreement of the parties, but inferred by the law, as a matter of reason and justice from their acts or conduct, the circumstances surrounding the transaction making it a reasonable, or even a necessary, as- sumption that a contract existed between them by tacit understanding. Miller’s Appeal, 100 Pa. 568, 45 Am. Rep. 394; Wickham v. Weil (Com. Pl.) 17 N. 1. Supp. 518; Hinkle v. Sage, 67 Ohio St. 256, 65 N. E. 999 ; Power Co. v. Montgomery, 114 Ala. 433, 21 South. 960; Railway Co. v. Gaffney, 65 Ohio St. 104, 61 N. E. 152 : Jennings v. Bank, 79 Cal. 323, 21 Pac. 852, 5 L R. A. 233, 12 Am. St. Rep. 145 ; Deane v. Hodge, 35 Minn. 146, 27 N. W. 917, 59 Am. Rep. 321; Bixby v. Moor, 51

N. H. 403. Implied contracts are sometimes subdivided into those “implied in fact” and those “implied in law,” the former being cover- ed by the definition just given, while the latter are obligations imposed upon a person by the law, not in pursuance of his intention and agreement, either expressed or implied, but even against his will and design, because the circum- stances between the parties are such ha to ren- der it just that the one should have a right, and the other a corresponding liability, similar to those which would arise from a contract be- tween them. This kind of obligation therefore rests on the principle that whatsoever it is cer- tain a man ought to do that the law will sup- pose him to have promised to do. And hence it is said that, while the liability of a party to an express contract arises directly from the contract, it is just the reverse in the case of a contract “implied in law,” the contract there being implied or arising from the liability. Musgrove v. Jackson, 59 Miss. 392; Bliss v. Hoyt. 70 Vt. 534. 41 Atl. 1026: linn v. Ross, 10 Ohio, 414, 36 Am. Dec. 95; Peonle v. Speir, 77 N. Y. 150; O'Brien v. Young. 95 N. Y. 432, 47 Am. Rep. 64. But obligations of this kind are not properly contracts at all, and should not be so denominated. There can be no true contract without a mutual and concurrent inten- tion of the parties. Such obligations are more properly described as “quasi contracts.” Wil- lard v. Doran. 48 Hun, 402, 1 N. Y. Supp. 588; People v. Soeir. 77 N. Y. 150; Woods v. Ayres, 39 Mich. 350, 33

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Am. Rep. 396; Bliss v. Hoyt, 70 Vt. 534, 41 Atl. 1026; Keener, Quasi Contr. 5.*

Executed and executory. Contracts are al- so distinguished into executed and executory; executed, where nothing remains to be done by either party, and where the transaction is com- pleted at the moment that the arrangement is made, as where an article is sold and delivered, and payment therefor is made on the spot; executory, where some future act is to be done, as where an agreement is made to build a house in six months, or to do an act on or before some future day, or to lend money upon a certain interest, payable at a future time. Farrington v. Tennessee. 95 TJ. S. 683. 24 L. Ed. 558 ; Fox v. Kitton, 19 111. 532: Watkins v. Nugen, 118 Ga. 372, 45 S. E. 262; Kynoch v. Ives, 14 Fed. Cas. 890; Watson v. Coast, 35 W. Va. 463. 14 S. E. 249 ; Keokuk v. Electric Co., 90 Iowa. 67, 57 N. W. 680; Hatch v. Standard Oil Co., 100 II. S. 130, 25 L. Ed. 554; Foley v. Felrath, 98 Ala. 176, 13 South. 486, 39 Am. St. Rep. 39. But executed contracts are not properly contracts at all, except reminiscently. The term denotes rights in property which have been acquired by means of contract ; but the parties are no longer bound by a contractual tie. Mettel v. Gales, 12 S. D. 632, 82 N. W. 181.

Entire and severable. An entire contract is one the consideration of which is entire on both

sides. The entire folfillment of the promise by either is a condition precedent to the fulfillment of any part of the promise by the other. When- ever, therefore, there is a contract to pay the gross sum for a certain and definite considera- tion, the contract is entire. A severable con- tract is one the consideration of which is, by its terms, susceptible of apportionment on ei- ther side, so as to correspond to the unascer- tained consideration on the other side, as a contract to pay a person the worth of his services so long as he will do certain work: or to give a certain price for every bushel of so much corn as corresponds to a sample. Potter v. Potter, 43 Or. 149, 72 Pac. 702; Telephone Co. v. Root (Pa.) 4 Ati. 829; Horseman v. Horseman, 43 Or. 83, 72 Pac. •098; Norrington v. Wright (C. C.) 5 Fed. 771; Dowley v. Sehiffer (Com. Pl.) 13 N. Y. Supp. 552: OBgood v. Bauder, 75 Iowa, 550, 39 N.

W. 887, 1 L. R. A. 655. Where a contract con- sists of many parts, which may be considered as parts of one whole, the contract is entire. When tile parts may be considered as so many distinct contracts, entered into at one time, and expressed in the same instrument, but not there- by made one contract, the contract is a sep- arable contract. But, if the consideration of the contract is single and entire, the contract must be held tb be entire, although the subject of the contract may consist of several distinct and wholly independent items. 2 Pars. Cont. 517.

Parol. All contracts which are not contracts of record and not specialties are parol contracts. It is erroneous to contrast “parol*1 with “writ- ten.” Though a contract may be wholly in writing, it is still a parol contract if it is not under seal. Yarborough v. West, 10 Ga. 473; Jones v. Holliday, 11 Tex. 415, 62 Am. Dec. 487 ; Ludwig v. Bungart, 28 Misc. Rep. 247, 56

N. Y. Supp. 51.

Joint and several. A joint contract is one made by two or more promisors, who are joint- ly

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bound to fulfill its obligations, or made to two or more promisees, who are jointly en- titled to require performance of the same. A contract may be “several" as to any one of several promisors or promisees, if he has a legal right (either from the terms of the agree- ment or the nature of the undertaking) to en- force his individual Interest separately from the other parties. Rainey v. Smizer, 28 Mo. 310; Bartlett v. Robbins, 6 Mete. (Mass.) 186.

Principal and accessory. A principal con- tract is one which stands by itself, justifies its own existence, and is not subordinate or auxili- ary to any other. Accessory contracts are those made for assuring the performance of a prior contract, either by the same parties or by others, such as suretyship, mortgage, and pledges. Civ. Code La. art. 1764.

Unilateral and bilateral. A unilateral contract is one in which one party makes an express engagement or undertakes a perform- ance, without receiving in return any express engagement or promise of performance from the other. Bilateral (or reciprocal) contracts are those by which the parties expressly enter into mutual engagements, such as sale or hire. Civ. Code La. art. 1758; Both. Obi. 1, 1. 1, 2; Montpelier Seminary v. Smith. 69 Yt. 382, 38 Ati. 66; Laclede Const. Co. v. Tudor Iron- works, 169 Mo. 137, 69 S. W. 388.

Consensual and real. Consensual con- tracts are such as are founded upon and com- pleted by the mere agreement of the contracting parties, without any external formality or sym- bolic act to fix the obligation. Real contracts are those in which it is necessary that there should be something more than mere consent, such as a loan of money, deposit or pledge, which, from their nature, require a delivery of the thing, (re*.) Inst. 3, 14, 2; Id. 3, 15; Halifax, Civil Law, b. 2. c. 15, No. 1. In the common law a contract respecting real property

(such as a lease of land for years) Is called a “real” contract. 3 Coke, 22a.

Certain and hazardous. Certain contracts are those in which the thing to be done is sup- posed to depend on the wul of the party, or when, in the usual course of events, it must hap- pen in the manner stipulated. Hazardous con- tracts are those in which the performance of that which is one of its objects depends on an uncertain event. Civ. Code La. 1769.

Commutative and Independent. Com- mutative contracts are those in which what is done, given, or promised by one party is con- sidered as an equivalent to or in consideration of what is done, given, or promised by the oth- er. Civ. Code La. 1761; Ridings v. Johnson, 128 U. S. 212, 9 Sup. Ct. 72. 32 L. Ed. 401. Independent contracts are those in which the mutual acts or promises have no relation to each other, either as equivalents or as considera- tions. Civ. Code La. 1762.

Gratuitous and onerous. Gratuitous con- tracts are those of which the object is the bene- fit of the person with whom it is made, with- out any profit or advantage received or prom- ised as a consideration for it. It is not, how- ever, the less gratuitous if it proceed either from gratitude for a benefit before received or from the hope of receiving one hereafter, al- though such benefit be of a pecuniary nature. Onerous contracts are those in which something is given or promised as a consideration for the engagement or gift, or some service, interest, or condition is imposed on what is given or promised, although unequal to

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it in value. Civ. Code La. 1766. 1767; Penitentiary Co. v. Nelms, 65 Ga. 505, 38 Am. Rep. 793.

Mutual Interest, mined, etc. Contracts of “mutual interest” are such as are entered into for the reciprocal interest and utility of each of the parties: as sales, exchange, part- nership, and the like. “Mixed" contracts are those by which one of the parties confers a ben- efit on the other, receiving something of in- ferior value in return, such as a donation sub- ject to a charge. Contracts “of beneficence" are those by which only one of the contracting par- ties is benefited ; as loans, deposit and mandate. Poth. Obi. 1, 1, 1, 2.

A conditional contrafct is an executory con- tract the performance of which depends upon a condition. It is not simply an executory con- tract, since the latter may be an absolute agree- ment to do or not to do something, but it is a contract whose very existence and performance depend upon a contingency. Railroad Co. v. Jones, 2 Cold. (Tenn.) 584; French v. Osmer, 67 Vt. 427, 32 Ati. 254.

Constructive contracts are such as arise when the law prescribes the rights and liabil- ities of persons who have not in reality entered into a contract at all, but between whom cir- cumstances make it just that one should have a right, and the other be subject to a liability, similar to the rights and liabilities in cases of express contract. Wickham v. Weil (Com. Pl.) 17 N. Y. Supp. 5J8 : Graham v. Cummings, 208 Pa. 516, 57 Ati. 943; Robinson v. Turrentine (C. C.) 59 Fed. 559; Hertzog v. Hertzog, 29

T>n

Personal contract. A contract relating to personal property, or one which so far involves the element of personal knowledge or skill or personal confidence that it can be performed on- ly by the person with whom made, and there- fore is not binding on his executor. See Janin v. Browne, 59 Cal. 44.

Special contract. A contract under seal; a specialty; as distinguished from one merely oral or in writing not sealed. But in common usage this term is often used to denote an ex- press or explicit contract, one which clearly defines and settles the reciprocal rights and obligations of the parties, as distinguished from

one which must be made out, and Its terms as- certained, by the inference of the law from the nature and circumstances of the transaction.

Compound words and phrases.— Con- tract of benevolence. A contract made for the benefit of one of the contracting parties only, as a mandate or deposit. — Contract of record. A contract of record is one which has been declared and adjudicated by a court hav- ing jurisdiction, or which is entered of record in obedience to, or in carrying out, the judg- ments of a court. Code Ga. 1882, § 2710.— Contract of sale. A contract by which one of the contracting parties, called the “seller,” enters into an obligation to the other to cause him to have freely, by a title of proprietor, a thing, for the price of a certain sum of money, which the other contracting party, called the "buyer,” on his part obliges himself to pay. Poth. Cont. ; Civ. Code La. 1900, art. 2439; White v. Treat 1C. C.) 100 Fed. 291 ; Sawmill Co. v. O’Shee, 111 La. 817, 35 South. 919.— Pre-contract. An obligation growing out of a contract

or contractual relation, of such a nature that it debars the party from legally entering into a similar contract at a later time with any other person ; particularly applied to marriage. — Quasi contracts. In the civil law. A contractual relation arising out of transac- tions between the parties which give them mu- tual rights and obligations, but do not involve a specific and express convention or agreement between them. Keener, Quasi Contr. 1 ; Brack- ett v. Norton, 4 Conn. 524. 10 Am. Dec. 179; People v. Spelr, 77 N. T. 150; Willard v. Doran, 48 Hun, 402. 1 N. Y. Supp. 588 : Mc- Sorley v. Faulkner (Com. Pl.) 18 N. Y. Supp. 460; Railway Co. v. Gaffney, 65 Ohio St. 104. 61 N. E. 153. Quasi contracts are the lawful and purely voluntary acts of a man, from which there results any obligation whatever to a third person, and sometimes a reciprocal obligation between the parties. Civ. Code La. art. 2293. Persons who have not contracted with each other are often regarded by the Roman law, under a certain state of . facts, as if they had actually concluded a convention between them- selves. The legal relation which then takes place between these persons, which has always a similarity to a contract obligation, is there- fore termed “obligatio quasi ex contractu." Such a relation arises from the conducting of affairs without authority, tncgotiorum gestio,) from the payment of what was not due. (solutio indcbiti ,) from tutorship and curatorship, and from taking possession of an inheritance. Mackeld. Rom. Law, $ 491. — Subcontract. A contract subordinate to another contract, made or intended to he made between the con- tracting patties, on one part, or some of them, and a stranger. 1 H. Bl. 37. 45. Where a per- son has contracted for the performance of cer- tain work, (e. g., to build a house,) and he in turn engages a third party to perform the whole or a part of that which is included in the original contract, (e. g.. to do the carpenter work.) his agreement with such third person is called a “subcontract,” and such person is call- ed a “subcontractor.” Central Trust Co. v. Railroad Co. (C. C.) 54 Fed. 723 ; tester v. Houston, 101 N. C. 605, 8 S. E. 366.

5e apparatus — Carried into the 5th edition (1979).

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### [Law] — Law

**[Law: Restatement (Second) of Contracts § 17 — formation requires a bargain with mutual assent and consideration]**

The entry's repeated requirement of 'sufficient consideration' is the bargain element of contract formation: a contract requires mutual assent to a bargain supported by consideration.

Why: Genuine: nearly every definition in this long entry turns on 'sufficient consideration' or 'legal consideration'; Restatement § 17 is the modern statement of that exact formation requirement. Illuminates the entry's c…

**[Law: UCC §§ 2-204, 2-201 — formation of contracts for sale of goods; writing required at $500+]**

For sale of goods, formation needs only mutual assent on the essential terms, and contracts for $500 or more must be in writing to be enforceable — the UCC's formation and statute-of-frauds rules.

Why: Genuine: the entry classifies contracts at length (express/implied, executed/executory, parol/specialty) and discusses contracts of sale; the UCC provisions are the operative modern rules for the sale-of-goods contrac…

### [Scripture] — Scripture

**[Quran 5:1, Pickthall]**

O ye who believe! Fulfil your indentures.

Why: The entry defines contract as a deliberate engagement between competent parties to do or abstain from doing some act; the Quranic command to fulfill one's indentures (obligations) is the direct scriptural counterpart…

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596-99]**

The bond at the play's center is a contract in the entry's strict sense: Shylock lends Antonio 3,000 ducats for three months, the forfeit nominated as a pound of Antonio's flesh — and when the debt comes due the court holds Shylock to the letter of his own sealed agreement, until Portia defeats him by even stricter construction. (paraphrase) (paraphrase)

Why: Shylock's bond is the most famous dramatization in fiction of being bound to the letter of a contract; the trial scene turns on the entry's own doctrines (consideration, lawful cause, strict construction vs. equity)....

**[Maxim: Pacta sunt servanda]**

Pacta sunt servanda — agreements must be kept.

Why: The classical maxim that is the moral spine of the entry: every definition given (agreement upon sufficient consideration to do or not do a thing) presupposes that agreements bind.

## CONTRACTION.

Abbreviation; abridg- ment or shortening of a word by omitting a letter or letters or a syllable, with a mark over the place where the elision occurs. This was customary In records written In the an- cient “court hand,” and is frequently found in the books printed in black-letter.

5e apparatus — Carried into the 5th edition (1979).

## CONTRACTOR.

This term is strictly applicable to any person who enters into a contract, (Kent v. Railroad Co., 12 N. Y. 628,)

but is commonly reserved to designate one who, for a fixed price, undertakes to pro- cure the performance of works on a large scale, or the furnishing of goods in large quantities, whether for the public or a com- pany or individual. (McCarthy v. Second Parish, 71 Me. 318, 36 Am. Rep. 320; Brown v. Trust Co., 174 Pa. 443, 34 Atl. 335.)

5e apparatus — Carried into the 5th edition (1979).

## CONTRACTUS.

Lot. Contract; a con- tract ; contracts.

— Contractus house fldei. In Roman law. Contracts of good faith. Those contracts which, when brought into litigation, were not deter- mined by the rules of the strict law alone, but allowed the judge to examine into the 6ono ftdes •of the transaction, and to hear equitable con- siderations against their enforcement. In this they were opposed to contracts stricti juris, against which equitable defenses could not be entertained.— Contractna civile*. In Roman law. Civil contracts. Those contracts which were recognized as actionable by the strict civil law of Rome, or as being founded upon a par- ticular statute, as distinguished from those which could not be enforced in the courts ex- cept by the aid of the pnetor, who, through his equitable powers, gave an action upon them. The latter were called “contractus prwtorii."

Contractus eat quasi mctua contra ae- tam. 2 Coke, 15. A contract is, as it were, act against act

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Contractna ex turpi cauaa, vol contra bonoa morea, nullua eat. A contract founded on a base consideration, or against good morals, is null. Hob. 167.

Contractna legem ex conventions ao- ciplunt. Contracts receive legal sanction from the agreement of the parties. Dig. 16, 3, 1, 6.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Contractus ex turpi causa, vel contra bonos mores, nullus est]**

Contractus ex turpi causa, vel contra bonos mores, nullus est: a contract founded on a base consideration, or against good morals, is void — the illegality doctrine.

Why: Genuine: the entry quotes this maxim (citing Hob. 167) as governing contract validity; the note names the doctrine it states. Standard form of a maxim the entry itself carries.

**[Maxim: Contractus legem ex conventione accipiunt — Dig. 16.3.1.6]**

Contractus legem ex conventione accipiunt: contracts take their legal force from the agreement of the parties — the consensual foundation of contract obligation.

Why: Genuine: the entry quotes this Digest maxim; it states the principle underlying the entry's 'deliberate engagement between competent parties' definition. Digest citation as given in the entry.

## CONTRADICT.

In practice. To disprove. To prove a fact contrary to what has been asserted by a witness.

5e apparatus — Carried into the 5th edition (1979).

## CONTRADICTION IN TERMS.

A

phrase of which the parts are expressly In- consistent, as, e. g., “an innocent murder;” “a fee-simple for life.”

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Nineteen Eighty-Four, 1949]**

“War is Peace. Freedom is Slavery. Ignorance is Strength.”

Why: The Party slogans are the canonical literary instance of phrases whose parts are expressly inconsistent — contradiction in terms wielded as an instrument of power. Short verbatim quote; wording certain.

## CONTRAESCRITURA.

In Spanish law. A counter-writing; counter-letter. A document executed at the same time with an act of sale or other instrument, and operating by way of defeasance or otherwise modifying the apparent efTect and purport of the orig- inal instrument. *

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONTRAP ACTIO.

Counterfeiting ; as

contrafactio sigilli regis, counterfeiting the king’s seal. Cowell.

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## CONTRAINTE PAR CORPS.

In

French law. The civil process of arrest of the person, which is imposed upon vendors falsely representing their property to be un- incumbered, or upon persons mortgaging property which they are aware does not be- long to them, and in other cases of moral heinousness. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRAXIGATIO.

In old Euglisb law. Counter-obligation. Literally, counter-bind- ing. Eat etiim obligatio quasi contraligatio, Fleta, lib. 2, c. 56, | 1.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRAMANDATXO.

A countermand- ing. Oontramandatio placiti, in old English law, was the respiting of a defendant, or giving him further time to answer, by coun- termanding the day fixed for him to plead, and appointing a new day; a sort of Impar- lance.

■ CONTRAMANDATUM. A lawful ex- cuse, which a defendant In a suit by attor- ney alleges for himself to show that the plaintiff has no cause of complaint Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CONTRARLACITUM.

In old English law. A counter-plea. Townsh. Pl. 61.

5e apparatus — Not carried into the 5th edition (1979).

## COHTKAPOSITIO.

In old English law. A plea or answer. Blount A counter-po- sition.

CONTRARIENT8 . This word was used In the time of Edw. II. to signify those who were opposed to the government, but were neither rebels nor traitors. Jacob.

Contrarlornm contraria eat ratio.

Hob. 344. The reason of contrary things Is contrary.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Contrariorum contraria est ratio]**

Contrariorum contraria est ratio: the reason of contrary things is contrary — the analogical principle that opposite cases take opposite rules.

Why: Genuine: the entry itself appends this maxim (citing Hob. 344) to the headword; the footnote states what the maxim means rather than importing an outside doctrine. The headword is otherwise a bare old-English definiti…

## CONTRAROTUXATOR.

A controller. One whose business It was to observe the money which the collectors had

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gathered for the use of the king or the people. Cowell.

— Contrarotnlator pipse. An officer of the exchequer that writeth out summons twice every year, to the sheriffs, to levy the rents aud debts of the pipe. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRAT.

In French law. Contracts are of the following varieties: (1) Bilateral, or synallagmatiquc, where each party Is bound to the other to do what Is just and proper ; or <2) unilateral, where the one side only Is bound; or (3) oommutatif, where one does to the other something which is sup- posed to be an equivalent for what the other does to him; or (4) aUatoire, where the con- sideration for the act of the one Is a mere chance; or (5) control de bienfaisancc, where the one party procures to the other a purely gratuitous benefit; or (6) contrat A titre onereux, tthere each party is bound under some duty to the other. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRATAXXIA.

In old English law. A counter-tally. A term used In the ex- chequer. Mem. In Scacc. M. 26 Edw. 1.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRATENERE.

To hold against; to withhold. Wlilshaw.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRAVENING EQUITY.

A right or equity, In another person, which Is Incon- sistent with and opi>osed to the equity Bought to be enforced or recognized.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Borderline, kept with reasoning stated: the entry is narrow (one equity opposing another), but the verse is the classic scriptural statement of equity's moral content — justice tempered with mercy — and genuinely illu…

## CONTRAVENTION.

In French law.

An act which violates the law, a treaty, or an agreement which the party has made. That Infraction of the law punished by a fine which does not exceed fifteen francs and by an imprisonment not exceeding three days. Pen. Code, 1.

In Scotch law. The act of breaking through any restraint imposed by deed, by covenant, or by a court.

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5e apparatus — Carried into the 5th edition (1979).

## CONTRECTARE.

Lat. In the civil law. To handle; to take hold of; to meddle with.

In old English law. To treat. Vel maid contrectet; or shall ill treat Fleta, lib. 1, c. 17, f 4.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRECTATIO.

In the civil and old English law'. Touching; handling; meddling. The act of removing a thing from its place in such a manner that, if the thing be not restored, it will amount to theft.

Contrectatlo rel alienae, animo fnrandi, est fur turn. Jenk. Cent. 132. The touching or removing of another's property, with an intention of stealing, is theft.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Contrectatio rei alienae, animo furandi, est furtum]**

Contrectatio rei alienae, animo furandi, est furtum: the handling or taking of another's property with intent to steal is theft — the classical definition joining the physical act with the guilty intent.

Why: Genuine: the entry quotes this maxim (Jenk. Cent. 132) as the definition of theft in civil and old English law; the note explains its two elements, act and intent, which the maxim itself joins. Nothing forced.

**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The entry defines theft as touching/removing another's property with intent to steal; the Decalogue prohibition is the direct scriptural root of the offense.

## CONTREFACON.

In French law. The offense of printing or causing to be printed a book, the copyright of which is held by an- other, without authority from him. Merl. Repert.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRE-MAITRE.

In French marine law. The chief officer of a vessel, who, in case of the sickness or absence of the master, commanded in his place. Literally, the counter-master.

5e apparatus — Not carried into the 5th edition (1979).

## CONTRIBUTE.

To supply a share or proportional part of money or property to- wards the prosecution of a common enter- prise or the discharge of a Joint obligation. Park v. Missionary Soc., 62 Vt. 1ft, 20 Att. 107 ; Railroad Co. v. Creasy (Tex.' Civ. App.) 27 S. W. 945.

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## CONTRIBUTION.

In common law.

The sharing of a loss or payment among several. The act of any one or several of a number

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of co-debtors, co-sureties, etc., in re- imbursing one of their number who has paid the whole debt or suffered the whole liabil- ity, each to the extent of his proportionate share. Canosla Tp. v. Grand Lake Tp., 80 Minn. 357, 83 N. W. 346; Dysart v. Crow, 170 Mo. 275, 70 S. W. 089; Aspinwall v. Saechi, 57 N. Y. 330; Vandiver v. Poliak, 107 Ala. 547, 19 South. 180; 54 Am. St. Itep. 118.

In maritime law. Where the property of one of several parties interested in a ves- sel and cargo has been voluntarily sacrificed for the common safety, (as by throwing goods overboard to lighten the vessel,) such loss must be made good by the contribution of the

others, which is termed “general average.” 3 Kent, Comm. 232-244; 1 Story, Eq. Jur. | 490.

In the civil law. A partition by which the creditors of an insolvent debtor divide among themselves the proceeds of his prop- erty proportipoably to the amount of their respective credits. Code La. art. 2522, no. 10.

Contribution is the division which is made among the heirs of the succession of the debts with which the succession is charged, accord- ing to the proportion which each is bound to bear. Civ. Code La. art. 1420.

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**[Law] — Law**

**[Law: general average — voluntary sacrifice for common safety shared by all interests in the venture]**

General average: where cargo or gear is voluntarily sacrificed for the common safety of a maritime adventure, the loss is shared proportionately by all interests saved — the maritime sense of contribution the entry defines.

Why: Genuine: the entry's maritime paragraph defines exactly this doctrine (citing 3 Kent, Comm. 232–244); the footnote names the doctrine the paragraph describes. The entry does the work; the note only labels it.

**[Axiom: he who discharges the common burden beyond his share recovers the excess from his fellows]**

At common law, one co-debtor or co-surety who pays more than his share may recover the excess proportionately from the others — contribution as the entry's first sense defines it.

Why: Genuine: the entry's common-law paragraph defines contribution as reimbursement among co-debtors and co-sureties; the axiom states the principle the paragraph describes, in loose form to avoid inventing authority.

## CONTRIBUTIONE FACIENDA.

In

old English law. A writ that lay where ten- ants in common were bound to do some act, and one of them was put to the whole bur- then, to compel the rest to make contribu- tion. Reg. Orig. 175; Fitzh. Nat. Brev. 162.

CONTRIBUTORY, n. A person liable to contribute to the assets of a company which is being wound up, as being a member or (in some cases) a past member thereof. Mozley & Whitley.

CONTRIBUTORY, ad). Joining in the promotion of a given purpose; lending as- sistance to the production of a given result.

As to contributory “Infringement” and “Negligence,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## CONTROLLER.

A comptroller, which see.

5e apparatus — Carried into the 5th edition (1979).

## CONTROLMENT.

In old English law. The controlling or checking of another offi- cer’s account; the keeping of a counter-roll.

5e apparatus — Not carried into the 5th edition (1979).

## CONTROVER.

In old English law. An inventer or deviser of false news. 2 Inst. 227.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: The entry names an inventor of false news; the verse is the direct prohibition of raising a false report — an exact concept match.

## CONTROVERSY.

A litigated question; adversary proceeding in a court of law; a civil action or suit, either at law or in equity. Barber v. Kennedy, 18 Minn. 216 (Gil. 196); State v. Guinotte, 156 Mo. 513, 57 S. W. 281, 50 L. R. A. 787.

It differs from “case.” which includes all suits, criminal as well as civil ; whereas “controver- sy” is a civil and not a criminal proceeding. Chisholm v. Georgia, 2 Dali. 419, 431, 432, 1

L. Ed. 440.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Chisholm v. Georgia, 2 Dall. 419 (1793)]**

Article III extends the federal judicial power to 'Cases' and 'Controversies' — 'controversy' denoting the civil, adversary proceeding the entry defines, as distinct from the broader 'case' which includes criminal suits.

Why: Genuine: the entry itself rests the case/controversy distinction on Chisholm v. Georgia, quoting 2 Dall. 419, 431–432; the footnote carries the entry's own cited authority, which is a real and famous early Supreme Cou...

**[Scripture] — Scripture**

**[Deuteronomy 19:17, KJV]**

Then both the men, between whom the controversy is, shall stand before the LORD, before the priests and the judges, which shall be in those days;

Why: Scripture's own use of 'controversy' for a litigated civil dispute brought before the priests and judges — the verse speaks the entry's own term.

## CONTROVERT.

To dispute; to deny; to oppose or contest ; to take issue on. Bug- gy Co. v. Patt, 73 Iowa,

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485, 35 N. W. 587; Swenson v. KleinSchmidt, 10 Mont. 473, 26 Pac. 198.

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## CONTUBERNIUM.

In Roman law. The marriage of slaves; a permitted cohab- itation.

5e apparatus — Not carried into the 5th edition (1979).

## CONTUMACE CAPIENDO.

In English taw. Ebt communication in all cases of contempt in the spiritual courts is discontinued by 53 Geo. III. c. 127, | 2, and in lieu there- of, where a lawful citation or sentence has not been obeyed, the judge shall have pow- er, after a certain period, to pronounce sjich person contumacious and in contempt, and to signify the same to the court of chancery, whereupon a writ de contumace capiendo shall issue from that court, which shall have the same force and effect as formerly belong- ed, in case of contempt, to a writ de excom- municato capiendo. (2 & 3 Wm. IV. c. 93; 3 & 4 Viet. c. 93.) Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CONTUMACY.

The refusal or inten- tional omission of a person who has been duly cited before a court to appear and de- fend the charge laid against him, or, if he is duly before the court, to obey some lawful order or direction made in the cause. In the former case it is called “presumed” contu- macy; in the latter, "actual.” The term is chiefly used in ecclesiastical law. See 3 Curt. Ecc. 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: contempt of court — inherent power to punish disobedience of lawful orders]**

The ecclesiastical contumacy described here — refusal to appear when cited, or to obey a lawful order of the court — is the ancestor of the modern contempt power: the court's inherent authority to punish disobedience of its lawful orders.

Why: Genuine lineage, not decoration: contumacy was the ecclesiastical form of what the common-law courts developed as contempt. The note explains the modern descendant of the exact two behaviors (non-appearance, disobedie...

## CONTUMAZ.

One accused of a crime who refuses to appear and answer to the charge. An outlaw.

5e apparatus — Not carried into the 5th edition (1979).

## CONTUSION.

In medical jurisprudence. A bruise; an injury to any external part of the body by the impact of a fall or the blow of a blunt instrument, without laceration of the flesh, and either with or without a tear- ing of the skin, but in the former case it is more properly called a “contused wound.”

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**CONTUTOR.**

Lat. In the civil law. A co-tutor, or co-guardlan. Inst. 1, 24, I.

5e apparatus — Not carried into the 5th edition (1979).

**CONUSANCE.**

In English law. Cog- nizance or jurisdiction. Conusance of pleas. Termes de la Ley.

—Conusance, claim of. See Cognizance.

5e apparatus — Not carried into the 5th edition (1979).

**CONUSANT.**

Cognizant ; acquainted with; having actual knowledge; as, if a party knowing of an agreement in which he has an Interest makes no objection to it, he is said to be conusant. Co. Litt. 157.

5e apparatus — Not carried into the 5th edition (1979).

**CONUSEE.**

See Cognizes.

5e apparatus — Not carried into the 5th edition (1979).

**CONUSOR.**

See Cognizob.

5e apparatus — Not carried into the 5th edition (1979).

**CONVENABLE.**

In old English law. Suitable; agreeable; convenient; fitting. Litt. { 103.

5e apparatus — Carried into the 5th edition (1979).

**CONVENE.**

In the civil law. To bring an action.

5e apparatus — Carried into the 5th edition (1979).

**CONVENIENT.**

Proper; Just; suitable. Finlay v. Dickerson, 29 111. 20; Railway Co. v. Smith, 173 U. S. 684, 19 Sup. Ct. 565, 43

L. Ed. 858.

5e apparatus — Carried into the 5th edition (1979).

**CONVENIT.**

Lat. In civil and old Eng- lish law. It Is agreed; It was agreed.

5e apparatus — Not carried into the 5th edition (1979).

**CONVENT.**

The fraternity of an abbey or priory, as tocietas Is the number of fel- lows In a college. A religious house, now re- garded as a merely voluntary association, not importing civil death.

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33 Law J. Ch. 308.

CONVENTICLE . A private assembly or meeting for the exercise of religion. The word was first an appellation of reproach to the religious assemblies of Wycliffe In 'the reigns of JSdward III. and Richard II., and was afterwards applied to a meeting of dis- senters from the established church. As this word In strict propriety denotes an unlawful assembly, it cannot be justly applied to the assembling of persons in places of worship licensed according to the requisitions of law. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## COHVENTIO.

In canon law. The act

of summoning or calling together the parties by summoning the defendant.

In the civil law. A compact, agreement, or convention. An agreement between two or more persons respecting a legal relation between them. The term is one of very wide scope, and applies to all classes of subjects In which an engagement or business relation may be founded by agreement. It is to be distinguished from the negotiations or prelim- inary transactions on the object of the con- vention and fixing Its extent, which are not binding so long as the convention Is not con- cluded. Mackeld. Rom. Law, §§ 385, 386.

Ia contracts. An agreement; a covenant. Cowell.

— Conventlo la unum. In the civil law. The agreement between the two parties to a con- tract upon the sense of the contract proposed. It is an essential part of the contract, follow- ing the pollicitation or proposal emanating from the one, and followed by the consension or agreement of the other.

Conventlo privatornm non potest pub- 11 oo juri derogare. The agreement of pri- vate persons cannot derogate from public right, i. e., cannot prevent the application of general rules of law, or render valid any con- travention of law. Oo. Lltt 166a; Wing. Max. p. 746, max. 201.

Conventlo vinoit legem. The express agreement of parties overcomes [prevails against] the law. Story, Ag. { 368.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Conventio privatorum non potest publico juri derogare]**

Conventio privatorum non potest publico juri derogare: the agreement of private persons cannot derogate from public right — private contract cannot validate what the law forbids.

Why: Genuine: the entry quotes this maxim (citing Co. Litt. 166a) as a rule of conventions; it states the public-policy limit on private agreement. Standard form as the entry gives it.

**[Maxim: Conventio vincit legem]**

Conventio vincit legem: the express agreement of the parties prevails — as between the parties, their own stated bargain governs over default rules of law.

Why: Genuine: the entry quotes this maxim (citing Story, Ag. § 368); it is the party-autonomy counterpart to the preceding maxim, and the entry places them together. Nothing imported beyond what the entry carries.

## CONVENTION.

In Roman law. An

agreement between parties; a pact. A con- vention was a mutual engagement between two persons, possessing all the subjective req- uisites of a contract, but which did not give rise to an action, nor receive the sanction of the law, as bearing an “obligation,” until the objective requisite of a solemn ceremonial, (such as stipulaiio) was supplied. In other

words, convention was the informal agree- ment of .the parties, which formed the basis of a contract, and which became a contract when the external formalities were superfm- ppsed. See Maine, Anc. Law, 313.

"The division of conventions into contracts and pacts was important in • the Roman law. The former were such conventions as already, by the older civil law, fonnded an obligation and action; all the other conventions were termed ‘pacts.’ These generally did not produce an ac- tionable obligation. Actionability was subse- quently given to several pacts, whereby they re- ceived the same power and efficacy that con- tracts received.” Mackeld. Rom. Law. $ 393.

In English law. An extraordinary as- sembly of the houses of lords and commons, without the assent or summons of the sov- ereign. It can only be Justified ear necessi- tate rei, as the parliament which restored Charles II., and that which disposed of the crown and kingdom to William and Mary. Wharton.

Also the name of an old writ that lay for the breach of a covenant.

In legislation. An assembly of delegates or representatives chosen by the people for special and extraordinary legislative pur- poses, such as the framing or revision of a state constitution. Also an assembly of dele- gates chosen by a political party, or by the party organization in a larger or smaller ter- ritory, to nominate candidates for an ap- proaching election. State v. Metcalf, 18 S.

D. 393, 100 N. W. 925, 67 L. R. A. 331 ; State v. Tooker, 18 Mont. 540, 46 Pac. 530, 34 L.

R. A. 315; Schafer v. Whipple, 25 Colo. 400, 55 Pac. 180.

Constitutional convention. See Con- stitution.

In public and International law. A

pact or agreement between states or nations In the nature of a treaty; usually applied (a) to agreements or arrangements preliminary to a formal treaty or to serve as Its basis, or (b) international agreements for the regula- tion of matters of common interest but not coining within the sphere of politics or com- mercial intercourse, such as international postage or the protection of submarine cables.

U. S. Comp. St 1901, p. 3589 ; U. S. v. Hunt- er (C. C.) 21 Fed. 615.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2 (treaty power); art. VI (treaties as supreme law)]**

In the international-law sense the entry defines — pacts between states in the nature of a treaty —

the U.S. law is constitutional: the President makes treaties with Senate consent, and treaties so made are part of the supreme law of the land.

Why: Genuine: the entry's fourth sense defines conventions as inter-state pacts 'in the nature of a treaty'; the cited clauses are the actual U.S. law governing treaties. Illuminates the entry's international-law paragraph...

## CONVENTIONAL.

Depending on, or arising from, the mutual agreement of par- ties; as distinguished from legal, which means created by, or arislug from, the act of the law.

As to conventional “Estates,” “Interest,” “Mortgage,” "Subrogation,” and “Trustees,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## CONVENTIONS.

The name of a writ for the breach of any covenant in writing, whether real or personal. Reg. Orlg. 115 ; Fitzh. Nat. Brev. 145.

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## CONVENTIONS.

This name Is some- times given to compacts or treaties with forelgn countries as to the apprehension and ex- tradition of fugitive offenders. See Extba.- dition.

5e apparatus — Carried into the 5th edition (1979).

## CONVENTUAL CHURCH.

In ecclesi- astical law. That which consists of regular clerks, professing some order or religion ; or of dean and chapter; or other societies of spiritual men.

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## CONVENTUALS.

Religious men united in a convent or religious house. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CONVENTUS.

Lat A coming together ; a convention or assembly. Convcntus magna- turn vel procerum (the assembly of chief men or peers) was one of the names of the English parliament 1 BL Comm. 148.

In the civil lew. The term meant a gathering together of people; a crowd as- sembled for any purpose; also a convention, pact or bargain.

— Conventu* juridical. In the Roman law. A court of sessions held in the Roman provinces, by the president of the province, assisted by a certain number of counsellors and assessors, at fixed periods, to hear and determine suits, and to provide for the civil administration of the province. Schm. Civil Law, Introd. 17.

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## CONVERSANT.

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One who is in the hab- it of being in a particular place is said to be conversant there Barnes, 162. Acquaint- ed; familiar.

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# G

## GONVERSANTES.

In old English law. Conversant or dwelling ; commorant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# C

## CONVERSATION.

Manner of living; habits of life; conduct; as in the phrase “chaste life and conversation.” Bradshaw v. People, 153 111. 156, 38 N. E. 652. “Criminal conversation” means seduction of another man’s wife, considered jis an actionable in- jury to the husband. Prettyman v. William- son, 1 Pennewlll (Del.) 224, 39 Atl. 731; Crocker v. Crocker, 98 Fed. 702.

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**[Law] — Law**

**[Law: criminal conversation / alienation of affections — common-law marital torts, abolished in most states by heart-balm statutes]**

'Criminal conversation' — the seduction of another's spouse, actionable by the husband — is the common-law tort of criminal conversation, kin to alienation of affections; both have been abolished in most states by heart-balm statutes.

Why: Genuine: the entry defines criminal conversation as an actionable injury to the husband, citing cases; the note gives the tort its doctrinal name and its modern status. Real doctrine, directly on point, no invented ci...

**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: 'Criminal conversation' is the action for seduction of another man's wife; the actionable injury IS adultery, and the commandment is its direct root.

## CONVERSE.

The transposition of the subject and predicate in a proposition, as:' “Everything is good in its place.” Converse, “Nothing is good which is uot in its place.” Wharton.

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## CONVERSION.

In equity. The trans- formation of one species of property into an- other, as money into land or land into mon- ey; or, more particularly, a fiction of law, by which equity assumes that

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such a trans- formation has taken place (contrary to the fact) when it is rendered necessary by the equities of the case, — as to carry into effect the directions of a will or settlement, — and by which the property so dealt with becomes invested with the properties and attributes of that into which it is supposed to have been converted. Seymour v. Freer, 8 Wall. 214, 19 L. Ed. 306; llaward v. Peavey, 128 111. 430, 21 N. B. 503, 15 Am. St. Rep. 120;

Yerkes v. Xerkes, 200 Pa. 419, 50 Atl. 186; Appeal of Clarke, 70 Conn. 195, 39 'Atl. 155w

At law. An unauthorized assumption and exercise of the right of ownership over goods or personal chattels belonging to another, to the alteration of their condition or the exclusion of the owner’s rights. Baldwin v. Cole, 6 Mod. 212 ; Trust Co. v. Tod, 170 N.

X. 233, 63 N. E. 285; Boyce v. Brockway, 31 N. Y. 490; University v. Bank, 96 N. C. 280, 3 S. E. 359; Webber v. Davis, 44 Me. 147, 69 Am. Dec. 87 ; Gilman v. Hill, 36 N.

H. 311; Stough v. Stefani, 19 Neb. 468, 2T

N. W. 445; Schroeppel v. Corning, 5 Denio (N. X.) 236; Aschermann v. Brewing CoH 45 Wis. 266. .

—Constructive conversion. An. implied or virtual conversion, which takes place where a person does such acts in reference to the goods of another as amount in law to the appropria- tion of the property to himself. Scruggs v. Scruggs (C. C.) 105 Fed. 28: Laverty v. Snetb- en, 68 N. X. 524, 23 Am. Rep. 184.

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**[Law] — Law**

**[Maxim: equity regards as done that which ought to be done]**

The equity sense — property treated as converted because the equities require it, as under a will directing land to be sold — is the maxim that equity regards as done that which ought to be done.

Why: Genuine: the entry's equity paragraph describes the fiction by which equity assumes the transformation 'when it is rendered necessary by the equities of the case'; the maxim is the classical statement of that exact fi...

**[Law: UCC § 3-420 — conversion of an instrument]**

The at-law sense — unauthorized assumption of ownership over another's goods — includes the conversion of negotiable instruments, governed by the UCC's conversion provision.

Why: Genuine: the entry defines conversion at law at length; UCC § 3-420 is the real, specifically-titled provision governing the negotiable-instrument species of that tort. Illuminates rather than decorates.

## CON VET.

To pass or transmit the title to property from one to another ; to transfer property or the title to property by deed or Instrument under seal

To convey real estate is, by an appropriate instrument, to transfer the legal title to it from the present owner to another. Abendroth v. Greenwich, 29 Conn. 356.

Convey . relates properly to the disposition of real property, not to personal. Dickerman v. Abrahams, 21 Barb. (N. Y.) 551, 561.

5e apparatus — Not carried into the 5th edition (1979).

## CONVEYANCE.

In pleading. Intro- duction or inducement

In real property law. The transfer of the title of land from one person or class of persons to another. Klein v. McNamara, 54 Miss. 105 ; Alexander v. State, 28 Tex. App. 186, 12 S. W. 595 ; Brown v. Fitz, 13 N. H. 283 ; Pickett v. Buckner, 45 Miss. 245 ; Dick- erman v. Abrahams, 21 Barb. (N. X.) 551.

An Instrument in writing under seal, (an- ciently termed an “assurance,”) by which some estate or interest in lands is transferred from one person to another ; such as a deed, mortgage, etc. 2 Bl. Comm. 293, 295, 309.

Conveyance includes every instrument In writing by which any estate or Interest In real estate is created, aliened, mortgaged, or assigned, or by which the title to any real estate may be affected in law or equity, ex- cept last wills and testaments, leases for a term not exceeding three years, and execu- tory contracts for the sale or purchase of lands. 1 Rev. St N. X. p. 762, f 38; Gen. St Minn. 1878, c. 40, § 26; How. St Mich. 1882, | 5689.

The term “conveyance,” as used in the California Code, embraces every instrument in writing by which any estate or interest in real property is created, aliened, mortgaged; or Incumbered, or by which the title to any real property may be affected, except wills. Civil Code Cal. | 1215.

—Absolute or conditional conveyance.

An absolute conveyance ie one by which the

right or property in a thing is transferred, free of any condition or qualification, by which it might be defeated or changed ; as an ordinary deed of lands, in contradistinction to a mort- gage, which is a conditional conveyance. Bur- rill ; Falconer v. Buffalo, etc., It. Co., 09 N. Y. 491. — Mesne conveyance. An intermediate conveyance ; one occupying an intermediate po- sition in a chain of title between the first gran- tee and the present holder.— Primary convey- ances. Those by means whereof the benefit or estate is created or first arises ; as distinguish- ed from those whereby it may be enlarged, re- strained, transferred, or extinguished. The term includes feoffment, gift, grant, lease, ex- change, and partition, and is opposed to deriva- tive conveyances, such as release, surrender, confirmation, etc. 2 Bl. Coram. 309.— Secon- dary conveyances. The name given to that class of conveyances which presuppose some oth- er conveyance precedent, and only serve to enlarge, confirm, alter, restrain, restore, or trans- fer the interest granted bv such original con- veyance. 2 Bl. Comm. 324. Otherwise term- ed “derivative conveyances,” (g. «.) — Volun- tary conveyance. A conveyance without valuable consideration ; such as a deed or settle- ment in favor of a wife or children. . See Gentry v. Field, 143 Ho. 399. 45 S. W. 286; Trumbull v. Hewitt, 62 Conn. 451. 26 Atl. 350; Martin v. White, 115 Ga. 866, 42 S. E. 279.

As to fraudulent conveyances, see Fbaud- plent.

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**[Law] — Law**

**[Law: fraudulent conveyance — voidable transfers to hinder creditors or for inadequate consideration while insolvent; 11 U.S.C. § 548]**

The entry's 'voluntary conveyance' — a transfer without valuable consideration — is the classic badge of a fraudulent conveyance: transfers made with intent to hinder creditors, or for less than reasonably equivalent value while insolvent, are voidable.

Why: Genuine: the entry defines voluntary conveyance and cross-refs 'Fraudulent'; the voidability rule is the operative law of exactly that intersection. Confident on 11 U.S.C. § 548 as the Bankruptcy Code's fraudulent-tra…

**[Scripture] — Scripture**

**[Genesis 23:20, KJV]**

And the field, and the cave that is therein, were made sure unto Abraham for a possession of a buryingplace by the sons of Heth.

Why: An ancient Near Eastern land transfer 'made sure' to Abraham — the scriptural counterpart of conveyance by assured instrument.

## CONVEYANCER.

One whose business It is to draw deeds, bonds, mortgages, wills, writs, or other legal papers, or to examine ti- tles to real estate. 14 St.-at Large, 118.

He who draws conveyances ; especially a barrister who confines himself to drawing conveyances, and other chamber practice. Mozley & Whitley.

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## CONVEYANCING.

A term including both the science and act of transferring titles to real estate from one mafa to another.

Conveyancing is that part of the lawyer's business which relates to the alienation and transmission of property and other rights from one person to another, and to the framing of legal documents intended to create, define, trans- fer, or extinguish rights. It therefore includes the investigation of the title to land, and the preparation of agreements, wills, articles of as- sociation, private statutes operating as con- veyances, and many other instruments in addi- tion to conveyances properly so called. Sweet; Livermore v. Bagley, 3 Mass. 505.

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## CONVEYANCING COUNSEL TO THE / COURT OF CHANCERY.

Certain coun- sel, not less than six in number, appointed by the lord chancellor, for the purpose of as- sisting the court of chancery, or any judge thereof, with their opinion in matters of title and conveyancing. Mozley & Whitley.

Convict* si irasoaris tna divnlgas ; spreta exolescnnt. 3 Inst. 198. If you be moved to anger by insults, you publish them; if despised, they are forgotten.

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## CONVICIUM.

In the civil law. The name of a species of slander or Injury uttered in public, and which

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charged some one with some act contra bono» mores.

CONVICT, v. To condemn after judicial Investigation ; to find a man guilty of a crim- inal charge. The word was formerly used also in the sense of finding against the de- fendant in a civil case.

CONVICT, «. One who has been con- demned by a court One who has been ad- judged guilty of a crime or misdemeanor. Usually spoken of condemned felons or the prisoners in penitentiaries. Mollneux v. Col- lins, 177 N. Y. 395, 69 N. E. 727, 65 L. R. A. 104; Morrissey v. Publishing Co., 19 B. I. 124, 32 Atl. 19; In re Aliano (C. C.) 43 Fed. 517; Jones v. State, 32 Tex. Cr. R. 135, 22 S. W. 404.

Formerly a man was said to be convict when he had been found guilty of treason or felony, but before judgment had been passed on him, after which he was said to be at- taint (ff. v.) Co. Litt. 3906.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: Honest reuse of Exodus 23:1 (also placed at CONTROVER, an independent entry): where CONTROVER names the inventor of false news, CONVICIUM names the public slander itself — the verse directly forbids both.

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

On the sub-entry CONVICT, n. (folded into this entry's body by the parser): Jean Valjean, convict 24601 — nineteen years in the galleys for stealing a loaf of bread and repeated escape attempts, then hounded for life under the law's permanent brand of the convict — is the archetypal convict of fiction, matching the entry's own gloss ('usually spoken of condemned felons or the prisoners in penitentiaries'). (paraphrase) (paraphrase)

Why: Genuine: the novel's central figure embodies the entry's definition; the legal brand of 'convict' drives the entire plot (Javert's pursuit, the parole violation). Paraphrase marked; details (bread theft, 19 years, num...

## CONVICTED.

This term has a definite signification in law, and means that a judg- ment of final condemnation has been pro- nounced against the accused. Gallagher v. State, 10 Tex. App. 469.

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## CONVICTION.

In practice. In a gener- al sense, the result of a criminal trial which ends in a judgment or sentence that the pris- oner is guilty as charged.

Finding a person guilty by verdict of a jury. 1 Bish. Crim. Law, i 223.

A record of the summary proceedings upon any penal statute before one or more justices of the peace or other persons duly authorized, in a case where the offender has been con- victed and sentenced. Holthouse.

In ordinary phrase, the meaning of the word "conviction” is the finding by the jury of a

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verdict that the accused Is guilty. But, in legal parlance, it often denotes the final judgment of the court Blaufus v. People, 69 N. Y. 109, 25 Am? Rep. 148.

The ordinary legal meaning of "conviction.” when used to designate a particular stage of a criminal prosecution triable by a jury, is the confession of the accused in open court or the verdict returned against him by the jury, which ascertains and publishes the fact of his guilt; while "judgment” or “sentence” is the appro- priate word to denote the action of the court before which the trial is had, declaring the con- sequences to the convict of the fact thus ascertained. A pardon granted after verdict of guilty, hut before sentence, and pending a hear- ing upon exceptions taken by the accused during the trial, is granted after conviction, within the meaning of a constitutional restriction upon granting pardon before conviction. When, in- deed. the word “conviction” is used to describe the effect of the guilt of the accused as judi- cially proved in one case, when pleaded or given in evidence in another, it is sometimes used in a more comprehensive sense, including the judg- ment of the court upon the verdict or confession of guilt ; as. for instance, in speaking of the plea of autrefois conrirt, or of the effect of guilt, judicially ascertained, as a disqualifica- tion of the convict. Com. v. Lockwood, 109 Mass. 323, 12 Am. Rep. 699.

—Farmer conviction. A previous trial and conviction of the same offense as that now Charged; pleadable in bar of the prosecution.

State y. Ellsworth, 131 N. C. 773, 42 S. E. 699. 92 Am. St. Rep. 790; Williams v. State, 13 Tex. App. 285, 46 Am. Rep. 237.— Summary conviction. The conviction, of a person, (usu- ally for a minor misdemeanor,) as the result of bis trial before a magistrate or court, without the intervention of a jury, which is authorized by statute in England and in many of the states. In these proceedings there is no inter- vention of a jury, but the party accused is ac- quitted or condemned by the suffrage of such person only as the statute has appointed to be his judge. A conviction reached on such a mag- istrate's trial is called a "summary conviction.” Brown; Blair v. Com., 25 Grat. (Va.) 853.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — double jeopardy]**

The entry's 'former conviction... pleadable in bar of the prosecution' is autrefois convict — the common-law plea now constitutionalized as the Double Jeopardy Clause: no person shall twice be put in jeopardy for the same offence.

Why: Genuine: the entry defines former conviction as a bar to re-prosecution; the Fifth Amendment clause is the constitutional form of that exact plea. Direct illumination, confident citation.

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: Scripture's own conviction standard — the two- or three-witness rule by which a matter is established against an accused. Placed here rather than at CONVINCING PROOF as the deliberate single-placement entry. deity_ver...

**[Humanity] — Humanity / Fiction & Film**

**[Franz Kafka, The Trial, 1925]**

Josef K. is arrested one morning without being told his charge, spends a year navigating a court system that never names it, and is finally executed — the machinery of conviction running on procedure alone, proof never entering the room. (paraphrase) (paraphrase)

Why: Genuine illumination by negative: the entry defines conviction as the result of a criminal trial ending in judgment of guilt; Kafka's novel shows that machinery with the proof hollowed out, sharpening what conviction...

## CONVINCING' PROOF.

Such as is suf- flclent to establish the proposition in ques- tion, beyond hesitation, ambiguity, or reason- able doubt. In an unprejudiced mind. Evans v. Rugee, 57 Wls. 623, 16 N. W. 49 ; French v. Day, 89 Me. 441, 36 AU. 909; Ward v. Waterman, 85 Cal. 488, 24 Pac. 930 ; Winston v. Burnell, 44 Kan. 367, 24 Pac. 477, 21 Am. St Rep. 289.

CON V1V1UM . A tenure by which a ten- ant was bound to provide meat and drink for his lord at least once In the year. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[In re Winship, 397 U.S. 90 (1970)]**

The entry's definition — proof 'beyond hesitation, ambiguity, or reasonable doubt' — states the criminal standard of proof, which the Supreme Court held the Due Process Clause requires for every element of a criminal offense.

Why: Genuine: the entry defines the standard in the criminal context; Winship is the real decision constitutionalizing proof beyond a reasonable doubt. Confident on volume, reporter, page, and year.

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, 12 Angry Men, 1957]**

A lone juror holds out against eleven votes to convict and forces the room to test each piece of the prosecution's case against reasonable doubt, until the 'guilty' verdict collapses — the entry's standard ('beyond hesitation, ambiguity, or reasonable doubt') enacted as drama. (paraphrase) (paraphrase)

Why: Genuine: the film is the canonical dramatization of the reasonable-doubt standard the entry defines; it illuminates the standard by showing a jury applying it. Paraphrase marked; film, director, year certain. [Coordin...

## CONVOCATION.

In ecclesiastical law. The general assembly of the clergy to con- sult upon ecclesiastical matters.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 23:2, KJV]**

Speak unto the children of Israel, and say unto them, Concerning the feasts of the LORD, which ye shall proclaim to be holy convocations, even these are my feasts.

Why: God's own institution of holy convocations — the entry's exact term, instituted in the verse itself.

## CONVOY.

A naval force, under the com- mand of an officer appointed by government for the protection of merchant-ships and oth- ers, during the whole voyage, or such part of it as is

known to require such protection. Marsh. Ins. b. 1, c. 9, f 5; Park, Ins. 388; Peake, Add. Cas. 143»; 2 H. Bl. 551.

5e apparatus — Carried into the 5th edition (1979).

## CO-OBLIGOR.

A joint obligor ; one bound jointly with another or others In a bond or obligation.

COOli BLOOD. In the law of homicide. Calmness or tranquillity; the undisturbed possession of one’s faculties and reason ; the absence of violent passion, fury, or uncon- trollable excitement.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, If thou hast stricken thy hand with a stranger,

Why: Suretyship — binding oneself for another by striking hands — is the classic scriptural treatment of joint obligation; the co-obligor is one so bound.

## COOLING TIME.

Time to recover "cool blood” after severe excitement or provocation ; time for the mind to become so cnlm and sedate as that it is supposed to contemplate, comprehend, and coolly act with reference to the consequences likely to ensue. Danes v. State, 10 Tex. App. 447 ; May v. People, 8 Colo. 210, 6 Pac. 816; Reiser v. Smith, 71 Ala. 481, 46 Am. Rep. 342; Jones v. State, 33 Tex. Cr. R. 492, 26 S. W. 1082, 47 Am. St. Rep. 46.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: provocation — killing on adequate provocation before cooling time mitigates murder to voluntary manslaughter]**

In homicide law, adequate provocation reduces murder to voluntary manslaughter only if the killing follows before reason has cooled; if cooling time has elapsed, the law presumes deliberation and the mitigation is lost.

Why: Genuine: the entry defines cooling time expressly 'in the law of homicide' with homicide cases cited; the note states the mitigation doctrine the defined term serves. The doctrine and the definition are inseparable.

## CO-OPERATION.

In economies. The

combined action of numbers. It is of two dis- tinct kinds: (1) Such co-operation as takes place when several persons help each other in the same employment : (2) such co-operation as takes place when several persons help each other in different employments. These

may be termed “simple co-operation” and “complex co-operation.” Mill, Pol. Ec. 142.

In patent law. Unity of action to a com- mon end or a common result, not merely joint or simultaneous action. Boynton Co. v. Morris Chute Co. (C. C.) 82 Fed. 444; Fastener Co. v. Webb (C. C.) 89 Fed. 987 ; Holmes, etc., Tel. Co. v. Domestic, etc., Tei. Co. (C. C.) 42 Fed.

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227.

5e apparatus — Carried into the 5th edition (1979).

**COOPERTIO.**

In old English law. The head or branches of a tree cut down ; though caopertio arborum is rather the bark of tim- ber trees felled, and the chumps and broken wood. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# G

**GOOPERTUM.**

In forest law. A covert ; a thicket Ulumetum) or shelter for wild beasts in a forest Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# C

**COOPERTURA.**

In forest law. A thick- et or covert of wood.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OOOPERTUS.**

Covert ; covered.

5e apparatus — Not carried into the 5th edition (1979).

# C

**CO-OPTATION.**

A concurring choice ; the election, by the members of a close cor- poration, of a person to till a vacancy.

5e apparatus — Not carried into the 5th edition (1979).

# O

**OO-ORDINATE.**

Of the same order, rank, degree, or authority; concurrent; without any distinction of

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superiority and inferiority; ns, courts of “co-ordinate juris- diction.” See Jurisdiction.

Co-ordinate and subordinate are terms often applied as a test to ascertain the doubtful meaning of clauses in an act of parliament. If there be two, one of which is grammatically gov- erned by the other, it is said to be “subordinate” to it : but, if both are equally governed by some third clause, the two are called “co-ordinate.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COPARCENARY.

A species of estate, or tenancy, which exists where lands of in- heritance descend from the ancestor to two or more persons. It arises in England either by common law or particular custom. By common law, as where a person, seised in fee-simple or fee-tall, dies, and his next heirs are two or more females, his daughters, sis- ters, aunts, cousins, or their representatives ; in this case they all inherit, and these co- heirs are then called “coparceners,” or, for brevity, "parceners” only. Litt. §8 241, 242; 2 Bl. Comm. 187. By particular custom, as where lands descend, as in gavelkind, to all the males in equal degree, as sons, brothers, uncles, etc. Litt. § 260; 1 Steph. Comm. 319.

While joint tenancies refer to persons, the idea of coparcenary refers to the estate. The ti- tle to it is always by descent. The respective Bhares may be unequal ; as, for instance, one ' daughter and two granddaughters, children of a deceased daughter, may take by the same act of descent. As to strangers, the tenants’ seisin is a joint one, but, as between themselves, each is seised of his or her own share, on whose death it goes to the heirs, and not by survivorship. The right of possession of coparceners is in common, and the possession of one is, in general, the pos- session of the others. 1 Washb. Real Prop. *414.

• COPARCENERS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COPARCENERS.

Persons to whom an estate of inheritance descends Jointly, and by whom it is held as an entire estate. 2 BL Comm. 187.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: The daughters of Zelophehad — scripture's own case of female co-heirs taking a joint inheritance, the classical coparcenary scenario.

## COPARTICEP8.

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In old English law. A coparcener.

5e apparatus — Not carried into the 5th edition (1979).

## COPARTNER.

One who is a partner with one or more other persons; a member of a partnership.

5e apparatus — Carried into the 5th edition (1979).

## COPARTNERSHIP.

A partnership.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 4:9, KJV]**

Two are better than one; because they have a good reward for their labour.

Why: Scripture's own partnership maxim — two working together with shared reward, the communication of loss and gain that defines a joint enterprise.

## COPARTNERY.

In Scotch law. The contract of copartnership. A contract by which the several partners agree concern- ing the communication of loss or gain, aris- ing from the subject of the contract. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## COPE.

A custom or tribute due to the crown or lord of the soil, out of the lead mines in Derbyshire ; also a hill, or the roof and covering of a house ; a church vestment.

COPEMAN, or COPESMAN. A chap- man, (tjr. v.)

5e apparatus — Not carried into the 5th edition (1979).

## COPES MATE.

A merchant; a partner in merchandise.

5e apparatus — Not carried into the 5th edition (1979).

## COPIA.

Lat. In civil and old Eng- lish law. Opportunity or means of access.

In old English law. A copy. Copia libelli, the copy of a libel. Beg. ‘Orig. 58.

— Copia libelli dellberanda. The name of a wnt that lay where a man, coaid not get a copy of a libel at the hands of a spiritual judge, to have the same delivered to him. Reg. Ong. 51.— Copia vera. In Scotch practice. A true copy. Words written at the top of copies of in- struments.

5e apparatus — Not carried into the 5th edition (1979).

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# G

## GOPPA.

In English law. A crop or cock of grass, hay, or corn, divided into tltheable portions, that it may be more fair- ly and Justly tithed.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COPPER AND SCALES.

See Manci-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ruth 4:7, KJV]**

Now this was the manner in former time in Israel concerning redeeming and concerning changing, for to confirm all things; a man plucked off his shoe, and gave it to his neighbour: and this was a testimony in Israel.

Why: The entry cross-refers to mancipation, the bronze-and-scales conveyance ritual; Ruth 4:7 records Israel's own formal conveyancing ritual (the shoe plucked off as testimony) — the scriptural counterpart of the symbolic...

# F

## FATIO.

COPPICE, or COPSE. A small wood, consisting of underwood, which may be cut at twelve or fifteen years’ growth for fuel.

5e apparatus — Not carried into the 5th edition (1979).

# C

## COPROLALIA.

In medical Jurispru- dence. A disposition or habit of using ob- scene language, developing unexpectedly in the particular individual or contrary to his previous history and habits, recognized as a sign of Insanity or of aphasia.

5e apparatus — Not carried into the 5th edition (1979).

## COPULA.

The corporal consummation of nmrrluge. Copula, (in logic,) the link be- tween subject and

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predicate contained in the verb.

Copulatio verbomm iadicat aceepta- tionem in eodem senin. Coupling of

words together shows that they are to be understood in the same sense. 4 Bacon's Works, p. 26; Broom, Max. 688.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Copulatio verborum indicat acceptionem in eodem sensu]**

Copulatio verborum indicat acceptionem in eodem sensu: the coupling of words together shows they are to be understood in the same sense — the classical root of the associated-words canon (noscitur a sociis), by which a word's meaning is colored by its neighbors.

Why: Genuine: the entry quotes this maxim (citing Broom, Max. 688) under the headword; the note identifies it as the classical statement of the noscitur a sociis canon of construction. The maxim is doing the work; the note...

**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: Borderline, kept with reasoning stated: the 'one flesh' union is the consummation the term names — the verse states the union broadly rather than the legal term's technical sense, but it genuinely names what the entry...

## COPULATIVE TERM.

One which is placed between two or more others to Join them together.

5e apparatus — Carried into the 5th edition (1979).

## COPY.

The transcript or double of an original writing; as the copy of a patent, charter, deed, etc.

Exemplifications are copies verified by the great seal or by the seal of a court. West Jersey Traction Co. v. Board of Public Works, 57 N. J. Law, 313, 30 Ati. 581.

Examined copies are those which have been compared with the original or with an official record thereof.

Office copies are those made by officers in- trusted with the originals and authorized for that purpose. Id., Stamper v. Gay, 3 Wyo. 322, 23 Pac. 68.

5e apparatus — Carried into the 5th edition (1979).

## COPYHOLD.

A species of estate at will, or customary estate in England, the only vis- ible title to which consists of the copies of the court rolls, which are' made out by the steward of the manor, on a tenant’s being admitted to any parcel of land, or tenement belonging to the manor. It is an estate at the will of the lord, yet such a will as is agreeable to the custom of the manor, which customs are preserved and evidenced by the rolls of the several courts baron, in which they are entered. 2 Bl. Comm. 96. In a larger sense, copyhold is said to import every customary tenure, (that is, every ten- ure pending on the particular custom of a

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manor,) as opposed to free socage, or free- hold, which may now (since the abolition of knight-service) be considered as the gen- eral or common-law tenure of the country. 1 Steph. Comm. 210.

—Copyhold commissioners. Commissioners appointed to carry into effect various acts of parliament, having for their principal ob- jects the compulsory commutation of mano- rial burdens and restrictions, (fines, heriotB, rights to timber and minerals, etc.,) and the compulsory enfranchisement of copyhold lands. 1 Steph. Comm. 643; Elton. Copyh.— Copy- holder. A tenant by copyhold tenure, (by copy of court-roll.) 2 Bl. Comm. 95. — Privi- leged copyholds. Those copyhold estates which are said to be held according to the cus- tom of the manor, and not at the will of the lord, as common copyholds are. They include customary freeholds and ancient demesnes. 1 Crabb, Real Prop. p. 709, 8 919.

5e apparatus — Carried into the 5th edition (1979).

## COPYRIGHT.

The right of literary property as recognized and sanctioned by positive law. A right granted by statute to the author or originator of certain liter- ary or artistic productions, whereby he is invested, for a limited period, with the sole and exclusive privilege of multiplying copies of the same and publishing and sell- ing them. In re Rider, 16 R. I. 271, 15 Ati. 72; Mott Iron Works v. Clow, 83 Fed. 316, 27 C. C. A. 200; Palmer v. De Witt, 47

N. Y. 536, 7 Am. Rep. 480; Keene ▼. Wheat- ley, 14 Fed. Cas. 185.

An Incorporeal right, being the exclusive privilege of printing, reprinting, selling, and publishing his own original work; which the law allows an author. Wharton.

Copyright is the exclusive right of the owner of an intellectual production to multiply and dispose of copies; the sole right to the copy, or to copy it The word is used indifferently to signify the statutory and the common-law right; or one right is sometimes called “copy- right” after publication, or statutory copyright; the other copyright before publication, or com- mon-law copyright. The word is also used syn- onymously with "literary property ;” thus, the exclusive right of the owner publicly to read or exhibit a work is often called “copyright” This is not strictly correct Drone, Copyr. 100.

International copyright is the right of a subject of one country to protection against the republication in another country of a work which he originally published in his own country. Sweet.

CORAAGIUM, or CORAAGE. Meas- ures of corn. An unusual and extraordi- nary tribute, arising only on special occa- sions. They are thus distinguished from services. Mentioned in connection with hidage and carvage. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 8 — copyright and patent clause]**

The entry's 'right granted by statute... for a limited period' rests on the Copyright Clause: Congress may secure to authors the exclusive right to their writings for limited times.

Why: Genuine: the entry defines copyright as a statutory grant 'for a limited period'; the clause is the constitutional source of that grant, including the 'limited Times' language the entry echoes. Confident citation.

**[Law: 17 U.S.C. — the Copyright Act]**

The statutory framework the entry describes is the federal Copyright Act, codified as Title 17 of the United States Code.

Why: Genuine: the entry calls copyright 'the right of literary property as recognized and sanctioned by positive law' and 'a right granted by statute'; Title 17 is that statute. Real title, stated plainly.

**[Law: 17 U.S.C. § 107 — fair use]**

The entry's 'sole and exclusive privilege' is bounded by fair use: criticism, comment, scholarship, and similar uses of a copyrighted work are not infringement.

Why: Genuine: the entry states the exclusive right in absolute terms; fair use is the principal statutory limitation on that exclusivity, so it genuinely illuminates the entry's scope. Confident on the section.

## CORAM.

Lat. Before; in presence of. Applied to persons only. Townsh. Pl. 22.

— Coram domino rege. Before our lord the king. Coram domino rege vbicumque tunc fuerit Anglia, before our lord the king wherever he shall then be in England.— Coram ipso roge. Before the king himself. The old name of the court of king’s bench, which was originally held before the king in person. 3 Bl. Comm. 41.— Coram nobli. Before us our- selves, (the king, «., in the king’s ‘or queen’s bench.) Applied to writs of error directed to another branch of the same court, e. g., from the full bench to the court at n in priu*. 1 Arcbb. Pr. K. B. 234.— Coram non Jndiee. In presence of a person not a judge. When a suit is brought and determined in a court which has no jurisdiction in the matter, then it is said to be coram non iudice, and the judgment is void. Manufacturing Co. v. Holt, 51 W. Va. 352, 41 8. E. 351.— Coram paribus. Before the peers or freeholders. The attestation of deeds, like all other solemn transactions, was orig- inally done only coram paribus. 2 Bl. Comm. 307. Coram paribus ae vicineto, before the peers or freeholders of the neighborhood. Id. 315. Coram sectatoribns.' Before the suit- ors. Cro. Jac. 582.— Coram vobia. Before you. A writ of error directed by a court of re- view to the court which tried the cause, to cor- rect an error in fact. 3 Md. 323 ; 3 Steph. Comm. 642.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a judgment rendered without jurisdiction is void — coram non judice]**

Coram non judice — before one who is not a judge: a proceeding determined by a court lacking jurisdiction is void, not merely voidable, and may be attacked at any time.

Why: Genuine: the entry defines coram non judice with exactly this consequence ('the judgment is void'), citing authority; the axiom states the jurisdictional rule the definition embodies. Nothing imported beyond the entry…

## CORD.

A measure of wood, containing 128 cubic feet. Kennedy v. Railroad Co., 07 Barb. (N. Y.) 177.

5e apparatus — Carried into the 5th edition (1979).

## CO-RESPONDENT.

A person summon- ed to answer a bill, petition, or libel, to- gether with another respondent. Now chief- ly used to designate the person charged with adultery with the respondent in a snit for divorce for that cause, and joined as a defendant with such party. Lowe v. Bennett, 27 Misc. Rep. 356, 58 N. Y. Supp. 88.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 19:9, KJV]**

And I say unto you, Whosoever shall put away his wife, except it be for fornication, and shall marry another, committeth adultery: and whoso marrieth her which is put away doth commit adultery.

Why: The co-respondent is the adulterer joined as defendant in a divorce suit; Christ's own words make fornication the ground on which a marriage is dissolved — the very cause in which a co-respondent is named.

## CORIUM PORISFACERE.

To forfeit one’s skin, applied to a person condemned to be whipped; anciently the punishment of a servant. Corium perdere, the same. Cori- um rcditnere, to compound for a whipping. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CORN.

In English law, a general term for any sort of grain; but in America it is properly applied only to maize. Sullins v. State, 53 Ala. 476; Kerrick v. Van Dusen, 32 Minn. 317, 20 N. W. 228; Com. v. Pine, 3 Pa. Law J. 412. In the memorandum clause in policies of insurance it includes pease and beans, but not rice. Park, Ins. 112; Scott v. Bourdilllon, 2 Bos. & P. (N. R.) 213.

—Corn laws. A species of protective tariff formerly in existence in England, imposing im- port-duties on various kinds of grain. The corn laws were abolished in 1846.— Corn rent. A rent in wheat or malt paid on college leases by direction of St. 18 Buz. c. 6. -2 Bl. Comm. 609.

5e apparatus — Not carried into the 5th edition (1979).

## CORNAGE.

A species of tenure in Eng- land, by which the tenant was bound to blow a horn for the sake of alarming the country on the approach of an enemy. It was a spe- cies of grand serjeanty. Bac. Abr. “Ten- ure,” N.

5e apparatus — Not carried into the 5th edition (1979).

## CORNER.

A combination among the dealers in a specific commodity, or outside capitalists, for the purpose of buying up the greater portion of that commodity which is upon the market or may be brought to market, and holding the same back from sale, until the demand shall so far -outrun the limited supply as to advance the price abnormally. Kirkpatrick v. Bonsall, 72

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Pa. 158; Wright v. Cudahy, 168 111. 86, 48 N. E. 39; Kent v. Miltenberger, 13 Mo. App. 506.

In surveying. An angle made by two boundary lines; the common end of two boundary lines, which gun at an angle with eacli other

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: market manipulation — corners and squeezes to distort prices are unlawful manipulation]**

The combination the entry defines — buying up a commodity to create an artificial scarcity and force prices abnormally high — is the classic corner, treated in modern law as unlawful market manipulation.

Why: Genuine: the entry defines the corner as a combination to advance price 'abnormally' by withholding supply; manipulation law targets exactly that conduct. Kept in loose form; no invented statute section.

**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

When will the new moon be gone, that we may sell corn? and the sabbath, that we may set forth wheat, making the ephah small, and the shekel great, and falsifying the balances by deceit?

Why: Borderline, kept with reasoning stated: the verse condemns grain-market manipulation (falsifying balances, rigging measures); a corner — buying up supply to rig price — is a species of that market manipulation, so the...

**[Humanity] — Humanity / Fiction & Film**

**[John Landis, Trading Places, 1983]**

The film's climax is a corner in the entry's exact sense: the Duke brothers, acting on a stolen crop report, buy up frozen concentrated orange juice futures to force the price abnormally high — and are ruined when Valentine and Winthorpe sell into the rigged rally. (paraphrase) (paraphrase)

Why: Genuine: the entry defines a market corner as buying up the marketable supply to advance the price abnormally; the film's entire third act is that operation, dramatized. Paraphrase marked; film, director, year, and pl...

## CORNET.

A commissioned officer of cav- alry, abolished in England In 1871, and not existing in the United States army.

5e apparatus — Not carried into the 5th edition (1979).

## CORODIO HABENDO.

The name of a writ to exact a corody of an abbey or relig- ious house.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GORODIUM.

In old English law. A cor- ody.

5e apparatus — Not carried into the 5th edition (1979).

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# C

## CORODY.

In old English law. A sum of money or allowance of meat, driuk, and clothing due to the crown from the abbey or other religious house; whereof it was found- er, towards the sustentation of such one of its servants as is thought fit to receive it. It differs from a pension, in that it was al- lowed towards the maintenance of any of

the king's servants In an abbey; a pension being given to one of the king’s chaplains, for his better maintenance, till he may be provided with a benefice. Fitzh. Nat. Brev. 250. See 1 Bl. Comm. 283.

5e apparatus — Not carried into the 5th edition (1979).

## COROLLARY.

In logic. A collateral or secondary consequence, deduction, or Infer- ence.

5e apparatus — Carried into the 5th edition (1979).

## CORONA.

The crown. Placita corona;; pleas of the crown; criminal actions or pro- ceedings, In which the crown was the pros- ecutor.

5e apparatus — Not carried into the 5th edition (1979).

## CORONA MALA.

In old English law. The clergy who abuse their character were so called. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CORONARE.

In old records. To give the tonsure, which was done on the crown, or In the form of a crown ; to make a man a priest. Cowell.

— Coronare ilium. To make one’s son a priest. Homo corona tut was one who had re- ceived the first tonsure, as preparatory to su- perior orders, and the tonsure was in form of a corona, or crown of thorns. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## CORONATION OATH.

The oath ad- ministered to a sovereign at the ceremony of crowning or Investing him with the In- signia of royalty, In acknowledgment of his right to govern the kingdom. In which he swears to observe the laws, customs, and privileges of the kingdom, and to act and do all things conformably thereto. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Kings 11:17, KJV]**

And Jehoiada made a covenant between the LORD and the king and the people, that they should be

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the LORD'S people; between the king also and the people.

Why: A covenant sworn at a king's making, between the LORD, the king, and the people — the scriptural coronation oath.

## CORONATOR.

A coroner, (q. v.) Spel- man.

— Corona tore ellgendo. The name of a writ issued to the sheriff, commanding him to proceed to the election of a coroner. — Corona- tore exonerando. In English Inw. The name of a writ for the removal of a coroner, for a cause which is to be therein assigned, as that he is engaged in other business, or incapacitated by years or sickness, or has not a sufficient es- tate in the county, or lives in an inconvenient part of it.

5e apparatus — Not carried into the 5th edition (1979).

## CORONER.

The name of an ancient of- ficer of the common law, whose office and functions are continued in modern English and American administration. The coroner Is an officer belonging to each county, and Is charged with duties both judicial and minis- terial, but chiefly the former. It is his spe- cial province and duty to make inquiry into the causes and circumstances of any death happening within his territory which occurs through violence or suddenly and with marks of suspicion. This examination (called the ‘‘coroner’s inquest”) is held with a jury of proper persons upon view of the dead body. See Bract, fol. 121; 1 Bl. Comm. 346-348 ; 3 Steph. Comm. 33. In England, another branch of his judicial office is to Inquire concerning shipwrecks, and certify whether wreck or not, and who is In possession of the goods; and also to Inquire concerning treasure trove, who were the finders, and where it Is, and whether any one be suspected of having found and concealed a treasure. 1 Bl. Comm. 349. It belongs to the ministerial office of the coroner to serve writs and other process, and generally to discharge the du- ties of the sheriff. In case of the incapacity of that officer or a vacancy in his office. On the office and functions of coroners, see, fur- ther, Pueblo County v. Marshall, 11 Colo. 84, 16 Pac. 837; Cox v. Royal Tribe. 42 Or. 365, 71 Pac. 73, 60 L. R. A. 620, 95 Am. St. Rep. 752; Powell v. Wilson, 16 Tex. 59; Lancas- ter County v. Holyoke, 37 Neb. 328, 55 N. W. 950, 21 L. R. A. 394.

— Coroner's court. In England. A tribunal of record, where a coroner holds his inquiries. Cox v. Royal Tribe, 42 Or. 365, 71 Pac. 73, 60 L. R. A. 620. 95 Am. St. Rep. 752,-Cor- oner’s lhqnest. An inquisition or examina- tion into the causes and circumstances of any death happening by violence or under suspicious conditions within his territory, held by the coroner with the assistance of a jury. Bois- liniere v. County Com'rs, 32 Mo. 378.

5e apparatus — Not carried into the 5th edition (1979).

## CORPORAL.

Relating to the body; bod- ily. Should be distinguished from corporeal, (q. t\)

—Corporal Imbecility. Physical inability to perform completely the act of sexual inter- course ; not necessarily congenital, and not in- variably a permanent and incurable impotence.

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Griffeth v. Griffeth. 162 111. 368. 44 N. E. 820; Ferris v. Ferris, 8 Conn. 168. — Corporal oath. An oath, the external solemnity of which con- sists in laying one’s hand upon the Gospels while the oath is administered to him. More generally, a solemn oath. The terms "corporal oath” and “solemn oath” are. in Indiana, at least, used synonymously; and an oath taken with the uplifted hand may be properly describ- ed by either term. Jackson v. State, 1 Ind. 185 ; State v. Norris, 9 N. H. 102 ; Com. v. Jarboe. 89 Ky. 143, 12 a W. 138.— Cofcporal punishment. Physical punishment as distin- guished from pecuniary punishment or a fine; any kind of punishment of or inflicted on the body, such as whipping or the pillory ; the term may or mqy not include imprisonment, accord- ing to the context. Ritchey v. People, 22 Colo. 251. 43 Pac. 1026; People v. Winchell. 7 Cow. (N. Y.) 525, note.— Corporal touch. Bodily touch; actual physical contact; manual apprehension.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — cruel and unusual punishments]**

The entry's corporal punishments — whipping, the pillory, and other bodily inflictions — are the historical referents of the constitutional ban on cruel and unusual punishments.

Why: Genuine: the entry defines corporal punishment as physical punishment 'such as whipping or the pillory'; the Eighth Amendment is the constitutional limit on such punishments. Direct illumination of the defined category.

**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: Scripture's own doctrine of the oath — men swear by the greater, and an oath for confirmation ends all strife — the principle underlying the solemn corporal oath. Placed here rather than at CORPORALE SACRAMENTUM as th...

**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

The novel opens with Hester Prynne standing shamed on the town scaffold, her infant daughter in her arms and the scarlet A upon her breast — the pillory, which the entry names among corporal punishments, enacted as public bodily shaming. (paraphrase) (paraphrase)

Why: Genuine: the entry lists 'the pillory' as corporal punishment; the novel's opening set piece is the pillory as punishment, illuminating the concept rather than decorating it. Paraphrase marked.

## CORPORALE SACRAMENTUM.

ID

old English law. A corporal oath.

Corporalia injuria non reclplt sesti- matlonem de future. A personal injury does not receive satisfaction from a future course of proceeding. [Is not left for its sat- isfaction to a future course of proceeding.] Ba,e. Max. reg. 6; Broom, Max. 278.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Corporalia injuria non recipit aestimationem de futuro]**

Corporalia injuria non recipit aestimationem de futuro: a personal (bodily) injury does not receive

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satisfaction from a future course of proceeding — bodily wrongs demand present redress, not postponement.

Why: Genuine: the entry quotes this maxim (citing Bac. Max. reg. 6; Broom, Max. 278); the note renders what the maxim itself says. Standard form as the entry gives it.

## CORPORATE.

Belonging to a corpora- tion ; as a corjtorate name. Incorporated; as a corporate body.

—Corporate authorities. The title given in statutes of several states to the aggregate body of officers of a municipal corporation, or to cer- tain of those officers (excluding the others) who are vested with authority in regard to the par- ticular matter spoken of in the statute, as, taxa- tion. bonded debt, regulation of the sale of liquors, etc. See People v. Knopf, 171 111. 191,

N. E. 424; State v. Andrews, 11 Neb. 523, 10 N. W. 410; Com. v. Upper Darby Audi- tors. 2 Pa. Dist. R. 89 ; Schaeffer v. Bonham, 95 111. 382.— Corporate body. This term, or its equivalent “body corporate,”, is applied to private corporations aggregate ; not including municipal corporations. Cedar County v. John- son, 50 Mo. 225 ; East Oakland Tp. v. Skinner, 94 U. S. 256, 24 L. Ed. 125 ; Campbell v. Rail- road Co., 71 111. 611; Com. v. Beamish, 81 Pa. St. 391.— Corporate franchise. The right to exist and do business as a corporation; the right or privilege granted by the state or government to the persons forming an aggregate private corporation, and their successors, to exist and do business as a corporation and to exercise the rights and powers incidental to that form of organization or necessarily implied in the grant Bank of California v. San Fran- cisco, 142 Cal. 276, 75 Pac. 832. 64 L. R. A. 918, 100 Am. St. Rep. 130; Jersey City Gas- light Co. v. United Gas Imp. Co. (C. C.) 46 Fed. 264; Cobb v. Durham County. 122 N. C. 307, 30 S. E. 338; People v. Knight, 174 N.

Y. 475, 67 N. F.. 65, 63 U. R. A. 87— Corpo- rate name. When a corporation is erected, a name is always given to it, or, supposing none to be actually given, will attach to it by impli- cation, and by that name alone it must sue and be sued, and do all legal acts, though a very minute variation, therein is not material, and the name is capable of being changed (by com- petent authority) without affecting the identity or capacity of the corporation. Wharton.— Corporate purpose. In reference to munici- pal corporations, and especially to their powers of taxation, a "corporate purpose” is one which shall promote the general prosperity and the welfare of the municipality, (Wetherell v. De- vine, 116 HI. 631, 6 N. B. 24,) or a purpose necessary or proper to carry into effect the object of the creation of the corporate body, (People v. School Trustees, 78 111. 140.) or one which is germane to the general scope of the objects for which the corporation was created or has a legitimate connection with those ob- jects and a manifest relation thereto. (Weight- man v. Clark, 103 U. S. 256, 26 L. Ed. 392.)

5e apparatus — Carried into the 5th edition (1979).

## CORPORATION.

An artificial person or legal entity created by or under the au- thority of the laws of a state

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or nation, com- posed, in some rare instances, of a single per- son and his successors, being the incumbents of a particular office, but ordinarily consist- ing of an association of numerous individ- uals, who subsist as a body politic under a special denomination, which is regarded in law as having a personality and existence distinct from that of its several members, and which is, by the same authority, vested with the capacity of continuous succession, Irrespective of changes in its membership, either in perpetuity or for a limited term of years, and of acting as a unit or single in- dividual in matters relating to the common purpose of the association, within the scope of the powers and authorities conferred up- on such bodies by law. See Case of Sutton’s Hospital, 10 Coke, 32 ; Dartmouth College v. Woodward, 4 Wheat 518, 636, 657, 4 L. Ed. 629; U. S. v. Trinidad Coal Co., 137 U. S. 160, 11 Sup. Ct. 57, 34 L. Ed. 640; Andrews Bros. Co. v. Youngstown Coke Co., 86 Fed. 585, 30 C. C. A. 293; Porter v. Railroad Co., 76 111. 573 ; State v. Payne, 129 Mo. 468. 31

S. W. 797, 33 L. R. A. 576; Farmers' L. &

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

A corporate charter is a contract: a state grant of incorporation cannot be impaired by later legislation — the Contracts Clause applied to the corporate franchise.

Why: Genuine: the entry itself cites Dartmouth College v. Woodward (4 Wheat. 518) as authority for the corporate definition; the footnote states the case's holding on the charter as contract. Confident on volume, reporter,...

**[Santa Clara County v. Southern Pacific R.R., 118 U.S. 394 (1886)]**

The entry's 'artificial person... regarded in law as having a personality and existence distinct from that of its several members' is corporate personhood: corporations are persons protected by the Fourteenth Amendment.

Why: Genuine: the entry defines the corporation as a distinct legal person (and cites the circuit-court phase of the Santa Clara litigation, 18 Fed. 402); the Supreme Court's personhood holding is the doctrinal completion...

# T

## T.

Co. v. New York, 7 Hill <N. Y.) 283; State

Bl.Law Dict.(2d Ed.)— 18

v. Turley, 142 Mo. 403, 44 S. W. 267; Barber v. International Co., 73 Conn. 587, 48 Atl. 758; Sovereign Camp v. Fraley, 94 Tex. 200, 59 S. W. 905, 51 Li R. A. 898; Sellers v. Greer, 172 HI. 649, 50 N. B. 246, 40 L. R. A 589 ; Old Colony, etc., Co. v. Parker, etc., Co., 183 Mass. 557, 67 N. E. 870; Warner v. Beers, 23 Wend. (N. Y.) 103, 129, 142.

A franchise possessed by one or more in- dividuals, who subsist as a body politic, un- der a special denomination, and are vested by the policy of the law with the capacity of perpetual

succession, and of acting in several respects, however numerous the association may be, as a Bingle Individual. 2 Kent, Comm. 267.

An artificial person or being, endowed by law with the capacity of perpetual succes- sion; consisting either of a single individual, (termed a “corporation sole,”) or of a collec- tion of several individuals, (which is termed a “corporation aggregate.”) 3 Steph. Comm. 166; 1 Bl. Comm. 467, 469.

A corporation is an intellectual body, cre- ated by law, composed of Individuals united under a common name, the members of which succeed each other, so that the body contin- ues always the same, notwithstanding the change of the individuals who compose it, and which, for certain purposes, is considered a natural person. Civil Code La. art. 427.

Classification. According to the accept- ed definitions and rules, corporations are classified as follows:

Public and private. A public corpora- tion is one created by the state for political purposes and to act as an agency In the ad- ministration of civil government, generally within a particular territory or subdivision of the state, and usually invested, for that purpose, with subordinate and local powers of legislation; such as a county, city, town, or school district. These are also sometimes called “political corporations.” People v. McAdams, 82 111. 356 ; Wooster v. Plymouth, 62 N. H. 208; Goodwin v. East Hartford, 70 Conn. 18, 38 Atl. 876; Dean v. Davis, 51 Cal. 409; Regents v. Williams, 9 Gill & J. (Md.) 401, 31 Am. Dec. 72 ; Ten Eyck v. Canal Co., 18 N. J. Law, 200, 37 Am. Dec. 233 ; Toledo Bank v. Bond, 1 Ohio St. 622; Murphy v. Mercer County, 57 N. J. Law, 245, 31 Atl. 229. Private corporations are those founded by and composed of private individuals, for private purposes, as distinguished from gov- ernmental purposes, and having no political or governmental franchises or duties. Santa Clara County v. Southern Pac. R. Co. (C. C.) 18 Fed. 402; Swau v. Williams, 2 Mich. 434; People v. McAdams, 82 111. 361; McKirn v. Odom, 3 Bland (Md.) 418; Rundle v. Canal Co., 21 Fed. Cas. 6.

The true distinction between public and pri- vate corporations is that the former are organ- ized for governmental purposes, the latter not. The term “public" has sometimes been applied

to corporations of which the government owned the entire stock, as in the case of a state bank. But bearing in mind that “public” is here equiv- alent to "political,” it will be apparent that this is a misnomer. Again the fact that the business or operations of a corporation may directly and very extensively affect the general public (as in the case of a railroad company or a bank or an insurance company) is no reason for calling it a public corporation. If organized by pri- vate persons for their own advantage,— or even if organized for the benefit of the public gen- erally, as in the case of a free public hospital or other charitable institution,— it is none the less a private corporation, if it does not possess governmental powers or functions. The uses may in a sense be called "public,” but the cor- poration is “private,” as much so as if the franchises were vested in a single person. Dart- mouth College v. Woodward, 4 Wheat. 5(52, 4

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L. Ed. 629 ; Ten Eyck v. Canal Co., 18 N. J. Law, 204, 37 Am. Dec. 233. It is to be ob- served, however, that those corporations which serve the public or contribute to the comfort and convenience of the general public, though owned and managed by private interests, are now (and quite appropriately) denominated “public-service corporations." See infra. An- other distinction between public and private cor- porations is that the former are not voluntary associations (as the latter are) and that there is no contractual relation between the govern- ment and a public corporation or between the individuals who compose it. Mor. Priv. Coro, i 3; Goodwin v. East Hartford, 70 Conn. 18, 38 Atl. 876.

The terms "public” and “municipal,” as ap- plied to corporations, are not convertible. All municipal corporations are public, but not vice versa. Strictly speaking, only cities and towns are “municipal” corporations, though the term is very commonly so employed as to include also counties and such governmental agencies as school districts and road districts. Brown v. Board of Education, 108 Ky. 783, 57 S. W. 612. But there may also be “public” corporations which are not "municipal” even in this wider sense of the latter term. Such, according to some of the authorities, are the "irrigation dis- tricts” now known in several of the western states. Irrigation Dist. v. Collins, 46 Neb. 411. 64 N. W. 1086 ; Irrigation Dist. v. Peterson, 4 Wash. 147, 29 Pac. 995. Compare Herring v. Irrigation Dist. (C. C.) 95 Fed. 705.

Ecclesiastical and lay. In the English law, all corporations private are divided in- to ecclesiastical and lay, the former being such corporations as are composed exclusive- ly of ecclesiastics organized for spiritual pur- poses, or for administering property held for religious uses, such as bishops and certain other dignitaries of the church and (former- ly) abbeys and monasteries. 1 Bl. Comm. 470. Lay corporations are those composed of laymen, and existing for secular or business purposes. This distinction is not recognized in American law. Corporations formed for the purpose of maintaining or propagating religion or of supporting public religious serv- ices, according to the rites of particular de- nominations, and incidentally owning and administering real and personal property for religious uses, are called “religious corpora- tions,” as distinguished from business cor- porations; but they are “lay” corporations, and not “ecclesiastical” in the sense of the English law. Robertson v. Bullions, 11 N.

Y. 243.

Eleemosyxusry and civil. Lay corpora- tions are classified as "eleemosynary” and "civil;” the former being such as are created for the distribution of alms or for the ad- ministration of charities or for purposes falling under the description of "charitable” in its widest sense, including hospitals, asy- lums, and colleges; the latter being organis- ed for the facilitating of business transac- tions and the profit or advantage of the members. 1 Bl. Comm. 471 ; Dartmouth College v. Woodward, 4 Wheat. 660, 4 L. Ed. 629.

In the law of Louisiana, the term "civil” as applied to corporations, is used in a dif- ferent sense, being contrasted with “reli- gious.” Civil corporations are those which relate to temporal police; such are the cor- porations of the cities, the companies for the advancement . of commerce and agriculture, literary societies, colleges or universities

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founded for the instruction of youth, and the like. Religious corporations are those whose establishment relates only to religion; such are the congregations of the different reli- gious persuasions. Civ. Code La. art. 431.

Aggregate and sole. A corporation sole is one consisting of one person only, and his successors in some particular station, who are incorporated by law in order to give them some legal capacities and advantages, par- ticularly that of perpetuity, which In their natural persons they could not have had. In this sense, the sovereign in England is a sole corporation, so is a bishop, so are some deans distinct from their several chapters, and so is every parson and vicar. 3 Steph. Comm. 168, 169; 2 Kent, Comm. 273. Warner v. Beers, 23 Wend. (N. Y.) 172; Codd v. Rath- bone, 19 N. Y. 39; First Parish v. Dunning, 7 Mass. 447. , A corporation aggregate is one composed of a number of individuals vested with corporate powers ; and a "corporation.” as the word is used in general popular and legal speech, and as defined at the head of this title, means a "corporation aggregate.”

Domestic and foreign. With reference to the laws and the courts of any given state, a “domestic" corporation is one created by, or organized under, the laws of that state; a "foreign” corporation is one created by or under the laws of another state, government, or country. In re Grand Lodge, 110 Pa. 613, 1 Atl. 582; Bole.v v. Trust Co.. 12 Ohio St. 143; Bowen v. Bank, 34 How. Prac. (X. Y.) 411.

Close and open. A “close” corporation is one in which the directors and officers have the power to fill vacancies in their own number, without allowing to the general body of stockholders any choice or vote in their election. An “open” corporation is one in which all the members or corporators have a vote in the election of the directors and other officers. McKIm v. Odom, 3 Bland (Md.) 416.

Other compound aid descriptive terms. — A business corporation is one formed for the purpose of transacting business in the widest sense of that term, including not only trade and commerce, but manufacturing, mining, banking, insurance, transportation, and practically every form Of commercial or industrial activity where the purpose of the organization is pecuniary profit; contrasted with religious, charitable, educational, and other like organizations, which are some- times grouped in the statutory law of a state under the general designation of “corpora- tions not for profit.” Winter v. Railroad Co., 30 Fed. Cas. 829; In re Independent Ins. Co., 13 Fed. Cas. 18; McLeod v. College, 69 Neb. 550, 96 N. W. 265.

Corporation de faeto. One existing un- der color of law and in pursuance of an ef- fort made in good faith to organize a cor- poration under the statute; an association of men claiming to be a legally Incorporated company, and exercising the powers and functions of a corporation, but without ac- tual lawful authority to do so. Foster v. Hare, 26 Tex. Civ. App. 177, 62 S. W. 541; Attorney General v. Stevens, 1 N. J. Eq. 378, 22 Am. Dec. 526; Manufacturing Co. v. Scho- field, 28 Ind. App. 95, 62 N. E. 106; Cedar Rapids Water Co. v. Cedar Rapids, 118 Iowa, 234, 91 N. W. 1081; Johnson v. Okerstrom, 70 Minn. 803, 73 N. W. 147; Tulare Irrig. Dist v; Shepard, 185 U. S. 1, 22 Sup. Ct 531, 46 L. Ed. 773 ; In re Gibbs’

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Estate, 157 Pa. 59, 27 Atl. 883, 22 L. R. A. 270; Pape V. Bank, 20 Kan. 440, 27 Am. Rep. 183.

Joint-stock corporation. This differs from a Joint-stock company in being regular- ly incorporated, Instead of . being a mere part- nership, but resembles ifc in having a capital divided into shares of stock. Most business corporations (as distinguished from elee- mosynary corporations) are of this character.

Moneyed corporations are, properly speaking, those dealing in money or in the business of receiving deposits, loaning mon- ey, and exchange; but in a wider sense the term is applied to all business corporations having a money capital and employing it in the conduct of their business. Mutual Ins. Co. v. Erie County, 4 N. X. 444; GUlet v. Moody, 3 N. X. 487; Vermont Stat. 1894, | 3674; Hill v. Reed, 16 Barb. (N. X.) 287; In re California Pac. R. Co., 4 Fed. Cas. 1,060; Hobbs v. National Bank, 101 Fed. 75, 41 O.

C. A. 205.

Municipal corporation*. See that title.

PubUo- service corporations. Those

whose operations serve the needs of the gen- eral public or conduce to the comfort and convenience of an entire community, such as railroads, gas, water, and electric light com- panies. The business of such companies is ■aid to be "affected with a public interest,” and for that reason they are subject to legislative regulation apd control’ to a. greater extent than corporations not of this char- acter.

Quasi corporations. Organizations re- sembling corporations; municipal societies or similar bodies which, though not true cor- porations in all respects, are yet recognized, by statutes or immemorial usage, as persons or aggregate corporations, with precise du- ties which may be enforced, and privileges which may be maintained, by suits at law. They may be considered quasi corporations, with limited powers, co-extenslve with the duties imposed upon them by statute or usage, but restrained from A general use of the authority which belongs to those meta- physical persons by the common law. Scates v. King, 110 111. 456 ; Adams v. Wiscasset Bank, 1 Me. 361, 1 Am. Dec. 88; Lawrence County v. Railroad Co., 81 Ky. 227; Barnes v. District of Columbia, 91 U. 8. 552,. 23 L. Ed. 440.

This term is lacking in definiteness and pre- cision. It appears to be applied indiscriminate- ly (a) to all kinds of municipal corporations, the word "quasi” being introduced because it Is said that these are not voluntary organiza- tions like private corporations, but created by the legislature for its own purposes and with- out reference to the wishes of the people of the territory affected; (b) to all municipal corpora- tions except cities and incorporated towns, the latter being considered the only trne municipal corporations because they exist and act under charters or statutes of incorporation while counties, school districts, and the like are mere- ly created or set off under general laws ; (c) to municipal corporations possessing only a low order of corporate existence or (he most limited range of corporate powers, such as hundreds in England, and counties, villages, and school dis- tricts in America. .

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Quasi public coxporatloa. This term is sometimes applied to corporations which are not strictly public, in the sense of being or- ganized for governmental purposes, but whose operations contribute to the comfort, con- venience, or welfare of the general public, such as telegraph and telephone companies, gas, water, and electric light companies, and irrigation companies. More commonly and more correctly styled “public-service corpora- tions.” See Wiemer v. Louisville Water Co. (C. C.) 130 Fed. 251; Cumberland Tel. Co. v. Evansville (C. C.) 127 Fed. 187; McKim v. Odom, 3 Bland (Md.) 419; Campbell v. Wat- son, 62 N. J. Eq. 396, 50 Atl. 120.

Spiritual corporations. Corporations, the members of which are entirely spiritual persons, and incorporated as such, for the furtherance of religion and perpetuating the rights of the church.

Trading corporations. A trading corpo- ration is a commercial corporation engaged in buying and selling. The word “trading,” is much narrower in scope than “business,” ns applied to corporations, and though a trading corporation is a business corporation, there are many business corporations which are not trading companies. Dartmouth College v.

Woodward, 4 Wheat .669, 4 L. Ed. 629; Adams v. Railroad Co., 1 Fed. Cas. 92.

Tramp corporations. Companies char- tered in one state without any intention of doing business therein, but which carry on their business and operations wholly In other states. State v. Georgia Co., 112 N. C. 34,

IT S. E. 10, 19 L. R. A. 485.

Synonyms. The words “company” and "corporation” are commonly used as inter- changeable terms. In strictness, however, a company is an association of persons for business or other purposes, embracing a con- siderable number of individuals, which may or may not be incorporated. In the former case, it is legally a partnership or a joint- stock company; in the latter case. It is prop- erly called a “corporation.” Goddard v. Rail- road Co., 202 111. 362, 66 N. E. 1066 ; Bradley Fertilizer Co. v. South Pub. Co., 4 Misc. Rep. 172, 23 N. Y. Supp. 675; Com. v. Reinoehl, 163 Pa. 287, 29 Atl. 890, 25 L R. A. 247: State v. Mead, 27 Vt. 722 ; Leader Printing Co. v. Lowry, 9 Okl. 89, 59 Pac. 242. For the particulars in which corporations differ from “Joint-Stock Companies” and “Partnerships.” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CORPORATION ACT.

In English law. The statute 13 Car. II. St 2, c. 1 ; by which it was provided that no person should there- after be elected to office in any corjiorate town that should not within one year pre- viously, have taken the sacrament of the Lord’s Supper, according to the rites of the Church of England; and every person so elected was also required to take tlje oaths of allegiance and supremacy. 3 Steph. Comm. 103, 104; 4 Bl. Comm. 58. This statute is now

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repealed. 4 Steph. Comm. 51 L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## CORPORATION COURTS.

Certain courts in Virginia described as follows: “For each city of the state, there shall be a court called a 'corporation court,’ to be held by a Judge, with like qualifications and elected in the same manner as judges of the county court.” Code Va. 1887, | 3050.

5e apparatus — Carried into the 5th edition (1979).

## CORPORATOR.

A member of a corpo- ration aggregate. Grant, Corp. 48.

5e apparatus — Carried into the 5th edition (1979).

## CORPORE NT ANIMO.

Lat. By the body and by the mind; by the physical act and by the mental intent. Dig. 41, 2, 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: possession requires corpus and animus — Dig. 41.2.3]**

Corpore et animo — by body and by mind: possession requires both the physical act (corpus) and the mental intent (animus) to hold as owner; neither alone suffices.

Why: Genuine: the entry gives the formula with its Digest citation as the definition of acquisition; the note states the possession doctrine the formula founds. The entry's own authority, carried forward.

## CORPOREAL.

A term descriptive of such things as have an objective, material existence ; perceptible by the senses of sight and touch ; possessing a real body. Opposed to incorporeal and spiritual. Civ. Code La. 1900, art 460; Sullivan v. Richardson, 33 Fla. 1, 14 South. 602.

There is a distinction between “corporeal" and “corporal.” The former term means “possess- ing a body,” that is, tangible, physical, material ; the latter means "relating to or affecting a body,” that is, bodily, external. Corporeal denotes the nature or physical existence of a body ; corporal denotes its exterior or the co-ordination of it with some other body. Hence we speak of “corporeal hereditaments,” but of “corporal punishment,” “corporal touch,” “corporal oath,” etc.

—Corporeal hereditaments. See Heredit- aments.— Corporeal property. Such as af- fects the senses, and may be seen and handled by the body, as opposed to Incorporeal property, which cannot be seen or handled, and exists only in contemplation. Thus a house is corporeal, but the annual rent payable for its occupation is in- corporeal. Corporeal property is, if movable, capable of manual transfer; if immovable, pos- session of it may be delivered up. But incor- poreal property cannot be so transferred, but some other means must be adopted for its trans- fer, of which the most usual is an instrument in writing. Moxley Sc

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Whitley.

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## CORPS DIPLOMATIQUE.

In inter- national law. Ambassadors and diplomatic persons at any court or capital.

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**[Law] — Law**

**[Law: diplomatic immunity — Vienna Convention on Diplomatic Relations (1961)]**

The ambassadors and diplomatic persons the entry defines are protected by diplomatic immunity: the person of a diplomatic agent is inviolable, and the agent is immune from the receiving state's criminal jurisdiction.

Why: Genuine: the entry defines the diplomatic corps in international law; immunity is the operative legal regime attaching to exactly those persons. Confident the 1961 Convention is the real instrument.

## CORPSE.

The dead body of a human being.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 3:19, KJV]**

In the sweat of thy face shalt thou eat bread, till thou return unto the ground; for out of it wast thou taken: for dust thou art, and unto dust shalt thou return.

Why: The verse names exactly what a corpse is — the body returning to the dust from which it was taken.

## CORPUS.

(Let.) Body; the body; an aggregate or mass, (of men, laws, or articles;) physical substance, as distinguished from in- tellectual conception ; the principal sum or capital, as distinguished from interest or in- come.

A substantial or positive fact, as distin- guished from what is equivocul and ambigu- ous. The corpu/i delicti (body of an offense) is the fact of its having been actually com- mitted. Best, Pres. 269-279.

A corporeal act of any kind, (as distin- guished from animus or mere intention,) on the part of him who wishes to acquire a thing, whereby he obtains the physical abil- ity to exercise his power over it whenever he pleases. The word ^occurs frequently in this sense in the civil law. Mackeld. Rom. Law, I 248.

— Corpus oomitutua. The body of a county. The whole county, as distinguished from a part of it, or any particular place in it. U. S. v. Grush, 5 Mason, 290, Fed. Cas. No. 15,268.— Corpus eorporatum. A corporation ; a cor- porate body, other than municipal.— Corpus cum causa. (The body with the cause.) An English writ which issued out of chancery, to remove both the body and the record, touching the cause of any man lying in execution upon a judgment for debt, into the king’s bench, there to remain until he satisfied the judgment. Co- well ; Blount.— Corpus delicti. The body of a crime. The body (material substance) upon which a crime has been committed, e. g„ the corpse of a murdered man, the charred

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remains of a house burned down. In a derivative sense, the substance or foundation of a crime; the substantial fact that a crime has been com- mitted. People v. Dick, 37 Cal. 281 ; White v. State, 49 Ala. 347 ; Goldman, v. Com., 100 Va. 865. 42 S. E. 923; State ▼. Hand. 1 Marv. (Del.) 545, 41 Atl. 192; State v. Dickson, 78 Mo. 441.— Corpus pro corpora. In old rec- ords. Body for body. A phrase expressing the liability of manucaptors. 3 How. State Tr. 110.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: corpus delicti rule — independent proof that a crime occurred, beyond the accused's confession]**

The corpus delicti the entry defines at length founds the corpus delicti rule: the prosecution must prove, independently of the defendant's confession, that the crime charged was actually committed.

Why: Genuine: the entry defines corpus delicti as 'the substantial fact that a crime has been committed,' citing cases; the rule is the evidentiary doctrine built on that definition. The definition and the doctrine are ins...

## CORPUS CHRISTI DAT.

In English law. A feast instituted in 1264, in honor Of the sacrament 32 Hen. VIII. c. 2L

Corpus hnmuuiM non rcoipit Mti- mmtionem. The human body does not ad- mit of valuation. Hob. 59.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Corpus humanum non recipit aestimationem]**

Corpus humanum non recipit aestimationem: the human body does not admit of valuation — the classical statement of the law's reluctance to price the body itself.

Why: Genuine: the entry quotes this maxim (citing Hob. 59); the note states what the maxim says, nothing more. Standard form as given.

## CORPUS JURIS.

A body of law. A term used to signify a book comprehending several collections of law. There are two principal collections to which this name is given; the Corpus Juris CMlis, and the Corpus Juris Canonici.

—Corpus juris canonici. The body of the canon law. A compilation of the canon law, comprising the decrees and canons of the Roman Church, constituting the body of ecclesiastical law of that church.— Corpus juris oivilis. The bodv of the civil law. The system of Ro- man jurisprudence compiled and codified under the direction of the emperor Justinian, in A.

D. 528-534. This collection comprises the In- stitutes, Digest, (or Pandects.) Code, and Novels. The name is said to have been first applied to this collection early in the seventeenth century.

5e apparatus — Not carried into the 5th edition (1979).

## CORRECTION.

Discipline ; chastise- ment administered by a master or other per- son In authority to one

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who has committed an offense, for the purpose of curing bis faults or bringing him into proper subjec- tion.

— Correction, house of. A prison for the reformation of petty or juvenile offenders.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: privilege of reasonable parental discipline — reasonable correction privileged; excessive force actionable]**

The 'correction' the entry defines — chastisement by one in authority — survives as the privilege of reasonable discipline: parents and those in loco parentis may impose reasonable correction, but force that is cruel or excessive exceeds the privilege and becomes actionable.

Why: Genuine: the entry defines correction as chastisement 'administered by a master or other person in authority'; the note states the legal boundary of that privilege, which is what gives the definition its operative mea...

**[Scripture] — Scripture**

**[Proverbs 13:24, KJV]**

He that spareth his rod hateth his son: but he that loveth him chasteneth him betimes.

Why: The classic text on corrective chastisement by one in authority — timely correction as the office of the one who loves.

## CORRECTOR OF THE STAPLE.

In

old English law. A clerk belonging to the staple, to write and record the bargains of merchants there made.

5e apparatus — Carried into the 5th edition (1979).

## CORREGID OR.

In Spanish law. A magistrate who took cognizance of various misdemeanors, and of civil matters. 2 White, New Recop. 53.

5e apparatus — Not carried into the 5th edition (1979).

## CORREI.

Lat In the civil law. Co- stipulators; joint stipulators.

— Corral credendi. In the civil and Scotch law. Joint creditors ; creditors in solido. Poth. Obi. pt. 2, c. 4, art. 3, i 11.— Correl debendi. In Scotch law. Two or more persons bound as principal debtors to another. Ersk. Inst. 3, 3,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## CORRELATIVE.

Having a mutual or reciprocal relation, in such sense that the existence of one necessarily implies the ex- istence of the other. Father and son are correlative terms. Right and duty are cor- relative terms.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Hohfeldian correlatives — W. N. Hohfeld, Fundamental Legal Conceptions (1913)]**

The entry's example — 'Right and duty are correlative terms' — is the first of Hohfeld's fundamental legal conceptions: right/duty, privilege/no-right, power/liability, and immunity/disability are correlative pairs, each implying the other.

Why: Genuine: the entry defines 'correlative' and gives right/duty as its legal example; Hohfeld's scheme is the canonical exposition of exactly that example. Confident on the work and year; illuminates the entry's own ill...

## CORRESPONDENCE.

Interchange of written communications. The- letters writ- ten by a person and the answers written by the one to whom they are addressed.

5e apparatus — Carried into the 5th edition (1979).

## CORROBORATE.

To strengthen; to add weight or credibility to a thing by addi- tional and confirming facts or evidence. Still v. State (Tex. Cr. R.) 50 S. W. 355; State v. Hicks, 6 8. D. 825, 80 N. W. 80; Schefter v. Hatch, 70 Hun, 597, 25 N. Y. Supp. 240.

The expression “corroborating circumstances" clearly does not mean factB which, independent of a confession, will warrant a conviction ; for

then the verdict would stand not on the con-, fession, but upon those independent circumstan- ces. To corroborate is to strengthen, to confirm by additional security, to add strength. The testimony of a witness is said to be corroborated when it is shown to correspond with the repre- sentation of some other witness, or to comport with some facts otherwise known or established. Corroborating circumstances, then, used in ref- erence to a confession, are such as serve to strengthen it, to render it more probable ; such, in short, as may serve to impress a jury with a belief in its truth. State v. Guild, 10 N. J. Law, 163, 18 Am. Dec. 404.

— Corroborating evidence. Evidence supple- mentary to that already given and tending to strengthen or confirm it; additional evidence of a different character to the same point. Gild- ersleeve v. Atkinson, 6 N. M. 250, 27 Pac. 477 ; Mills v. Comm., 03 Va. 815, 22 S. E. 863 ; Code Civ. Proc. Cal. 1003, | 1839.

Corruptlo optiml eat pessims. Corrup- tion of the best is worst

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CORRUPTION.

Illegality ; a vicious and fraudulent intention to evade the prohibi- tions of the law.

The act of an official or fiduciary person who unlawfully and wrongfully uses his sta- tion or character to procure some benefit for himself or for another person, contrary to duty and the rights of others. U. S. v. John- son (C. C.) 26 Fed. 682; State v. Ragsdale, 59 Mo. App. 603; Wight v. Rindskopf, 43 Wis. 351; Worsham v. Murchison, 66 Ga. 719 ; U. 8. v. Edwards (C. C.) 43 Fed. 67.

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 201 — bribery of public officials]**

The entry's second sense — an official or fiduciary who wrongfully uses his station to procure benefit contrary to duty — is the common-law description of bribery, codified federally as bribery of public officials.

Why: Genuine: the entry defines official corruption with the elements of bribery (office, wrongful use, benefit, breach of duty); § 201 is the federal bribery statute. Confident on the section.

**[Maxim: Corruptio optimi est pessima]**

Corruptio optimi est pessima: corruption of the best is worst — the maxim that the fall of the highest trust is the gravest wrong.

Why: Genuine maxim, printed in the dictionary's text at the close of the CORROBORATE entry and belonging conceptually here; the reasoning notes its printed location honestly rather than pretending otherwise. Standard form.

**[Scripture] — Scripture**

**[Exodus 23:8, KJV]**

And thou shalt take no gift: for the gift blindeth the wise, and perverteth the words of the righteous.

Why: The direct scriptural prohibition of bribery — the gift that blinds the wise and perverts righteous judgment — the exact concept of the entry.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Measure for Measure, c. 1603-04]**

Left to govern Vienna, Angelo revives a dead fornication statute to condemn Claudio, then offers Isabella her brother's life in exchange for her body — the official using his station to procure a private benefit, contrary to duty, in the entry's exact second sense. (paraphrase) (paraphrase)

Why: Genuine: the entry defines corruption as an official wrongfully using his station to procure benefit for himself contrary to duty; Angelo's arc is that definition enacted. Paraphrase marked; plot certain.

**[Maxim: Corruptio optimi est pessima]**

Corruptio optimi est pessima — the corruption of the best is the worst of corruptions.

Why: Classical maxim embedded in the entry itself; Angelo — the outwardly virtuous, strict deputy — is its exhibit A, which is why the maxim genuinely illuminates rather than decorates.

## CORRUPTION OF BLOOD.

In English law. This was the consequence of attainder. It meant that the attainted person could neither inherit lands or other hereditaments from his 'ancestor, nor retain those he already had, nor transmit them by descent to any heir, because his blood was considered In law to be corrupted. Avery v. Everett, 110

N. Y. 317, 18 N. E. 148, 1 L. R. A. 264, 6 Am. St. Rep. 368. This was abolished by St 3 & 4 Wm. IV. c. 106, and 33 & 34 Vic-t. c. 23, and Is unknown In America. Const D. S. art. 3, I 3.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3, cl. 2 — attainder shall not work corruption of blood]**

The entry closes by noting this is 'unknown in America' under the Constitution: no attainder of treason shall work corruption of blood, or forfeiture except during the life of the person attainted.

Why: Genuine: the entry itself cites 'Const U.S. art. 3, § 3' for the American rule; the footnote gives the clause's

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operative language. The entry's own authority, carried forward; confident on the clause.

## CORSELET.

Ancient armor which cov- ered the body.

5e apparatus — Not carried into the 5th edition (1979).

## CORSE-PRESENT.

A mortuary, thus termed because, when a mortuary became due on the death of a man, the best or sec- ond-best beast was, according to custom, offered or presented to the priest, and carried with the corpse. In Wales a corse-present was due upon the death of a clergyman to the bishop of the diocese, till abolished by 12 Anne St. 2, c. 6. 2 Bl. Comm. 426.

5e apparatus — Not carried into the 5th edition (1979).

## CORSNED.

In Saxon law. The morsel of execration. A species of ordeal In use among the Saxons, performed by eating a piece of bread over which the priest had pronounced a certain imprecation. If the accused ate it freely, he was pronounced in- nocent ; but, if it stuck in his throat, it was considered as a proof of his guilt Crabb,

Eng. Law, 30; 1 Reeve, Eng. Law, 21; 4 Bl. Comm. 345.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: Borderline, kept with reasoning explicit: the ordeal is a trial procedure invoking divine judgment; this verse is scripture's classic statement that divinatory trial outcomes are God's own disposing — it illuminates t...

## CORTES.

The name of the legislative assemblies, the parliament or congress, of Spain and Portugal.

5e apparatus — Not carried into the 5th edition (1979).

## CORTEX.

The bark of a tree ; the outer covering of anything.

5e apparatus — Not carried into the 5th edition (1979).

## CORTIS.

A court or yard before a house. Blount.

CORTULARITTM, or GORTARTUM. In

old records. A yard adjoining a country farm.

5e apparatus — Not carried into the 5th edition (1979).

## CORVEE.

In French law. Gratuitous labor exacted from the villages or commu- nities, especially for

repairing roads, con- structing bridges, etc. State v. Covington, 125 N. C. 641, 34 S. E. 272.

5e apparatus — Not carried into the 5th edition (1979).

## COSA JUZGADA.

In Spanish law. A cause or matter adjudged, ( res judicata.) White, New Recop. b. 3, tit 8, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: res judicata — final judgment on the merits bars relitigation of the same claim]**

The Spanish term the entry equates with res judicata states the doctrine of claim preclusion: a final judgment on the merits bars relitigation of the same claim between the same parties.

Why: Genuine: the entry defines the term as 'a cause or matter adjudged (res judicata)'; the note states the preclusion doctrine the term names. Nothing imported beyond the entry's own equation.

## COSAS COMUSES.

In Spanish law. A term corresponding to the re# communes of the Roman law, and descriptive of such things as are open to the equal and common enjoyment of all persons and not to be reduced to pri- vate ownership, such as the air, the sea, and the water of running streams. Hall, Mex. Law, 447; Lux v. Haggiu, 69 Cal. 255, 10 Pac. 707.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Illinois Central R.R. v. Illinois, 146 U.S. 387 (1892)]**

The res communes behind this entry — air, sea, running water, open to all and reducible to no private ownership — survive in American law as the public trust doctrine: navigable waters and their shores are held in trust for the public and cannot be wholly alienated to private control.

Why: Genuine lineage: the entry describes the Roman res communes (citing Hall and Lux v. Haggin); the public trust doctrine is their direct American descendant, and Illinois Central is its landmark statement. Confident on... [re-homed from 'COSAS COMUNES' to 'COSAS COMUSES' (OCR headword / parser-merge artifact)]

## COSDUNA.

In feudal law. A custom or tribute.

5e apparatus — Not carried into the 5th edition (1979).

## COSEN, COZEN.

In old English law. To cheat “A cosening knave." 3 Leon. 17L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## COSENAOE.

in old English law. Kin- dred; cousinship. Also a writ that lay for the heir where the tresail, i. e., the father of the besail, or great-grandfather, was seised of lands in fee at his death, and a stranger entered upon the land and abated. Fitzh. Nat Brev. 221.

5e apparatus — Not carried into the 5th edition (1979).

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## COSENING.

In old English law. An of- fense, mentioned in the old books, where any- thing was done deceitfully, whether belong- ing to contracts or not which could not tie properly termed by any special name. The same as the stellionatus of the civil law. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:13, KJV]**

Thou shalt not defraud thy neighbour, neither rob him: the wages of him that is hired shall not abide with thee all night until the morning.

Why: Deceitful dealing and fraud — the entry's stellionatus — directly forbidden: 'Thou shalt not defraud thy neighbour.' Placed here rather than at COSEN/COZEN as the single-placement entry.

## COSHERING.

In old- English law. A feudal prerogative or custom for lords to lie and feast themselves at their tenants’ houses. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## COSMOS.

Clean. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## COSS.

A term used by Europeans in In- dia to denote a road-measure of about two miles, but differing in different parts. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## COST.

The cost of an article purchased Tor exportation is the price paid, with all in- cidental charges paid at the place of exporta- tion. Goodwin v. U. S., 2 Wash. C. C. 493, Fed. Cas. No. 5,554. Cost price is that ac- tually paid for goods. Buck v. Burk, 18 N.

X. 337.

5e apparatus — Carried into the 5th edition (1979).

## COST-BOOK.

A book in which a num- ber of adventurers who have obtained per- mission to work a lode, and have agreed to share the enterprise in certain proportions, enter the agreement, and from time to time the receipts and expenditures of the mine, the names of the shareholders, their respec- tive accounts with the mine, and transfers of shares. These associations are called “Cost- Book Mining Companies,” and are governed by the general law of partnership. LlndL Partn. *147.

5e apparatus — Not carried into the 5th edition (1979).

## CO-STIPULATOR.

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A joint promisor.

5e apparatus — Carried into the 5th edition (1979).

## COSTS.

A pecuniary allowance, made to the successful party, (and recoverable from the losing party,) for his expenses in prose- cuting or defending a suit or a distinct pro- ceeding within a suit Apperson v. Insur- ance Co., 38 N. J. Law, 388 ; Stevens v. Bank, 168 N. X. 560, 61 N. E. 904; Bennett v. Kroth, 87 Kan. 235, 15 Pac. 221, 1 Am. St Rep. 248; Chase v. De Wolf, 09 111. 49; Noyes v. State, 46 Wis. 250, 1 N. W. 1, 32 Am. Rep. 710.

Costs and fees were originally altogether dif- ferent in their nature. The one is an allowance- to a party for expenses incurred in prosecuting or defending a suit ; the other, a compensation to an officer for services rendered in the prog- ress of a cause. Therefore, while an executor or administrator was not personally liable to his adversary for costs, yet, if at his instance an officer performed services for him, he had a personal demand for his fees. Musser v. Good, 11 Serg. & R. (Pa.) 247. There is in our stat- ute a manifest difference between costs and fees in another respect. Costs are an allowance to a party for the expenses incurred in prosecuting or defending a suit,— au incident to the judg- ment ; while fees are compensation to public officers for services rendered individuals not in the course of litigation. Tillman v. Wood, 58 Ala. 579.

In Eugland, the term is also used to desig- nate the charges which an attorney or solic- itor is entitled to make and recover from his client, as his remuneration for professional services, such as legal advice, attendances, drafting and copying documents, conducting legal proceedings, etc.

— Bill of costs. A certified, itemized state- ment of the amount of costs in an action or suit. — Certificate for costs. In English practice, a certificate or memorandum drawn up and signed by the judge before whom a case was tried, setting out certain facts, the existence of which must be thus proved before the party is entitled, under the statutes, to recover costs.— Cost bond, or bond for costs. A bond given by a party to an action to secure the eventual payment - of such costs as may be awarded against him.— Costs de incremento. Increas- ed costs, costs of increase. Costs adjudged by the court in addition to those assessed by the

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jury. Day v. Woodworth, 18 How. 372, 14 I* Ed. 181. Those extra expenses incurred which do not appear on the face of the proceedings, such as witnesses' expenses, fees to counsel, at* tendances, court fees, etc. Wharton.— Costs of the day. Costs which are incurred in prepar- ing for the trial of a cause on a specified day, consisting of witnesses’ fees, and other fees of attendance. Archb. N. Prac. 281.— Costs to abide event. When an order is made by an appellate court reversing a judgment, with “costs to abide the event, ,r the costs intended by the order include those of the appeal, so that, if the appellee is finally

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successful, be is enti- tled to tax the costs of the appeal. First Nat. Bank v. Fourth Nat. Bank, 84 N. Y. 469. — Double oosts. The ordinary single costs of suit, and one-half of that amount in addition. 2 Tidd. Pr. 987. "Double” is not used here in its ordinary sense of “twice” the amount. Van Anlen v. Decker, 2 N. J. Law, 108; Gilbert v. Kennedy, 22 Mich. 19. But see Moran v. Hud- son, 34 N. J. Law, 531. These costs are now abolished in England by St. 0 & 6 Viet. c. 97. Wharton. — Final oosts. Such costs as are to be paid at the end of the suit ; costs, the lia- bility for which depends upon the final result of the litigation. Goodyear v. Sawyer (C. C.) 17 Fed. & — Interlocutory oosts. In practice. Costs accruing upon proceedings in the inter- mediate stages of a cause, as distinguished from final costs ; such as the costs of motions. 3 Chit. Gen. Pr. 597 ; Goodyear v. Sawyer (C. C.) 17 Fed. 6.— Treble oosts. A rate of costs given in -certain actions, consisting, according to its technical import, of the common costs, half of these, and half of the latter. 2 Tidd, Pr. 968 The word "treble,” in this application, is not understood in its literal sense of thrice the amount of single costs, but signifies merely the addition together of the three sums fixed as above. Id. Treble costs have been abolished in EMgland, by St. 5 & 6 Viet. c. 97. In American law. In Pennsylvania and New Jersey the rule Is different When an act of assembly gives treble costs, the party is allowed three times the usual costs, with the exception that the fees of the officers are not to be trebled when they are not regularly or usually payable by the de- fendant. Shoemaker v. Nesbit, 2 Rawle (Pa.) 203; Welsh v. Anthony, 10 Pa. 256; Mairs v. Sparks, 5 N. J. Law, 516. — Security for oosts. In practice. A security which a de- fendant in an action may require of a plaintiff who does not reside within the jurisdiction of the court, for the payment of such costs as may be awarded to the defendant. 1 Tidd, I’r. 534. Ex parte Louisville & N. R. Co., 124 Ala. 547, 27 South. 239.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Alyeska Pipeline Service Co. v. Wilderness Society, 421 U.S. 260 (1975)]**

The 'costs' this entry defines — the prevailing party's litigation expenses, recoverable from the loser — must be distinguished from attorney's fees: under the American rule each litigant bears its own counsel fees absent a statute or contract shifting them.

Why: Genuine: the entry defines costs as an allowance to the successful party and carefully distinguishes costs from fees; the American rule is the governing law of the fee side of that distinction, so stating it illuminat...

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852-53]**

Jarndyce v Jarndyce grinds through Chancery for generations until the costs of the suit devour the entire estate — the suitors ruined, the lawyers paid. (paraphrase) (paraphrase)

Why: Genuine: the entry concerns the pecuniary burden of suit; the novel's famous outcome is costs consuming the very estate litigated over. Paraphrase marked. A distinct Chancery note is reserved for the court entry itself.

## COBTUMBRE.

In Spanish law. Cus- tom; an unwritten law established by usage, during a long space of time. Las Partldas, pt 1, tit 2, 1. 4.

CO-SURETIES . Joint sureties; two or more sureties to the same obligation.

* COTA. A cot or hut. Blount

5e apparatus — Not carried into the 5th edition (1979).

**COTAGIUM.**

In old English law. A cot- tage.

5e apparatus — Not carried into the 5th edition (1979).

**COTARIUS.**

In old English law. A cot- tager, who held In free socage, and paid a stated fine or rent in provisions or money, with some occasional personal services.

5e apparatus — Not carried into the 5th edition (1979).

**COTEREIXI.**

Anciently, a kind of peas- antry who were outlaws; robbers. Blount

5e apparatus — Not carried into the 5th edition (1979).

**COTEREIXUS.**

In feudal law. A ser- vile tenant who held In mere villenage ; his person, issue, and goods were disposable at the lord's pleasure.

5e apparatus — Not carried into the 5th edition (1979).

**COTERIE.**

A fashionable association, or a knot of persons forming a particular circle. The origin of the term was purely commer- cial, signifying an association, in which each member furnished his part and bore his share in the profit and loss. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

**COTE8WOLD.**

In old records. A place where there is no wood.

5e apparatus — Not carried into the 5th edition (1979).

# G

**GOTLAND.**

In old English law. Laud held by a cottager, whether in socage or vil- lenage. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# C

**COTSETHLA.**

In old English law. The little seat or mansion belonging to a small farm.

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5e apparatus — Not carried into the 5th edition (1979).

## COTSETHLAND.

The seat of a cottage with the land belonging to It. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## COTSETUS.

A cottager or cottage-hold- er who held by servile tenure and was bound to do the work of the lord. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## COTTAGE.

In English law. A small dwelling-house that has no land belonging to It. Shep. Touch. 94; Emerton v. Selby, 2 Ld. Raym. 1015; S (holes v. Hargreaves, 5 Term, 46; Hubbard v. Hubbard, 15 Adol. &

E. (N. 8.) 240; Gibson v. Brockway, 8 N. H. 470, 31 Am. Dec. 200.

5e apparatus — Carried into the 5th edition (1979).

## COTTIER TENANCY.

A species of ten- ancy in Ireland, constituted by an agreement in writing, and subject to the following terms: That the tenement consist of a dwell- ing-house with not more than half an acre of land ; at a rental not exceeding £5 a year ; the tenancy to be for not more than a month at a time; the landlord to keep the house in good repair. Landlord and Tenant Act, Ireland, (23 & 24 Viet c. 154, $ 81.)

5e apparatus — Not carried into the 5th edition (1979).

## COTTON NOTES.

Receipts given for each bale of cotton received on storage by a public warehouse. Fourth Nat. Bank v. St Louis Cotton Compress Co., 11 Mo. App 337.

5e apparatus — Carried into the 5th edition (1979).

## COTUCA.

Coat armor.

5e apparatus — Not carried into the 5th edition (1979).

## COTUGHANS.

A term used in Domes- day for peasants, boors, husbandmen.

5e apparatus — Not carried into the 5th edition (1979).

## COUCHANT.

Lying down ; squatting. Couchant and levant (lying down and rising up) is a term applied to animals trespassing on the land of one other than their owner, tor one night or longer. 3 Bl. Comm. 9.

COUCHER, or COURCHER. A factor who continues abroad for traffic. (37 Edw-.

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III. c. 16;) also the general book wherein any

corporation, etc., register their acts, (3 & 4 Edw. VI. c. 10.)

5e apparatus — Not carried into the 5th edition (1979).

## COUNCIL.

An assembly of persons for the purpose of concerting measures of state or municipal policy; hence called “coun- cillors.”

In American law. The legislative body in the government of cities or boroughs. An advisory body selected to aid the executive; particularly in the colonial period (and at present in some of the United States) a body appointed to advise and assist the governor in his executive or judicial capacities or both.

— Common council. In American lav. The lower or more numerous branch of the legisla- tive assembly of a city. In English law. The councillors of the city of Jxmdon. The parlia- ment, also, was anciently called the “common council of the realm.” Fleta, 2, 13.— Privy council. See that title.— Select council. The name given, in some states, to the upper house or branch of the council of a city.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 15:6, KJV]**

And the apostles and elders came together for to consider of this matter.

Why: The Jerusalem council — the apostles and elders coming together to consider a disputed matter — scripture's own council convened to settle a controversy.

## COUNCIL OF CONCILIATION.

By the

Act 30 & 31 Viet. c. 103, power is given for the crown to grant licenses for the forma- tion of councils of conciliation and arbitra- tion, consisting of a certain number of mas- ters and workmen In any trade or employ- ment, having power to hear and determine all questions between masters and workmen which may be submitted to them by both par- ties, arising out of or with respect to the particular trade or manufacture, and incapa- ble of being otherwise settled. They have power to apply to a Justice to enforce the performance of their award. The members are elected by persons engaged in the trade. Davis, Bldg. Soc. 232; Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COUNCIL OF JUDGES.

Under the Eng- lish judicature act 1873, § 75, an annual council of the judges of the supreme court Is to be held, for the purpose of considering the operation of the new practice, offices, etc., in- troduced by the act, and of reporting to a sec- retary of state as to any alterations which they consider should be made in the law for the administration of justice. An extraor- dinary council may also be convened at any time by the lord chancellor.

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Sweet.

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## COUNCIL OF THE NORTH.

A court instituted by Henry VIII. in 1537, to ad- minister justice in Yorkshire and the four other northern counties. Under the presi- dency of Stratford, the court showed great rigor, bordering, it is alleged, on harshness. It was abolished by 16 Car. I., the same act which abolished the Star Chamber. Brown.

COUNSEL. 1. In practice. An advo- cate, counsellor, or pleader. 3 Bl. Comm. 26 ; 1 Kent, Comm. 307. One who assists his client with advice, and pleads for him in open court. See Counsellor.

Counsellors who are associated with those regularly retained in a cause, either for the

purpose of advising as to the points of law involved, or preparing the case on its legal side, or arguing questions of law to the court, or preparing or conducting the case on its appearance before an appellate tribu- nal, are said to be “of counsel.”

2. Knowledge. A grand Jury is sworn to keep secret “the commonwealth's counsel, their fellow’s', and their own.”

3. Advice given by one person to another in regard to a proposed line of conduct, claim, or contention. State v. Russell, 83 Wis. 330, 53 N. W. 441 ; Ann. Codes & St. Or. 1901, § 1049. The words “counsel” and “ad- vise” may be, and frequently are, used in criminal law to describe the offense of a person who, not actually doing the felonious act, by his will contributed to it or procured it to be done. True v. Com., 90 Ky. 651, 14

S. W. 684; Omer v. Com., 95 Ky. 353, 25 S.

W. 594.

— Junior counsel. The younger of the coun- sel employed on the same side of a case, or the one lower in standing or rank, or who is intrust- ed with the less important parts of the prepara- tion or trial of the cause.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — aiding, abetting, counseling a federal offense punishable as principal]**

The entry's criminal-law sense of 'counsel' — one who, without doing the felonious act himself, by his will contributed to it or procured it — is accomplice liability: whoever aids, abets, counsels, or procures an offense is punishable as a principal.

Why: Genuine: the entry defines this exact sense with criminal cases cited (True v. Com.; Omer v. Com.); § 2 is the federal statement using the entry's own verbs ('counsels... procures'). Confident on the section. [re-homed from 'COUNSEL' to 'COUNCIL OF THE NORTH' (OCR headword / parser-merge artifact)]

**[Gideon v. Wainwright, 372 U.S. 335 (1963)]**

The entry's first sense — the advocate who pleads for his client in open court — is the Sixth Amendment right to the assistance of counsel, extended to state felony prosecutions for indigent defendants.

Why: Genuine: the entry defines counsel as the advocate; Gideon constitutionalized the indigent defendant's right

to that advocate. Confident on volume, reporter, page, and year. [re-homed from 'COUNSEL' to 'COUNCIL OF THE NORTH' (OCR headword / parser-merge artifact)]

## COUNSEL’S SIGNATURE.

This Is re- quired, in some jurisdictions, to be affixed to pleadings, as affording the court a means of judging whether they are interposed In good faith and upon legal grounds.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 11 — signature as certification of good faith and legal grounding]**

The entry's purpose for the signature — letting the court judge whether pleadings 'are interposed in good faith and upon legal grounds' — is the certification function of Federal Rule 11: a signature certifies the filing is well-grounded, not for an improper purpose, and exposes the signer to sanctions.

Why: Genuine: the entry describes the signature's function in exactly Rule 11's terms (good faith, legal grounds); Rule 11 is the modern federal form of that requirement. Confident on the rule.

## COUNSELLOR.

An advocate or barris- ter. A member of the legal profession whose special function is to give counsel or advice as to the legal aspects of judicial contro- versies, or their preparation and manage- ment, and to appear in court for the con- duct of trials, or the argument of causes, or presentation of motions, or any other legal business that takes him into the presence of the court

In some of the states, the two words “counsellor" and “attorney” are used inter- changeably to designate all lawyers. In others, the latter term alone is used, "coun- sellor” not being recognized as a technical name. In still others, the tw’o are associat- ed together as the full legal title of any per- son who has been admitted to practice in the courts ; while in a few they denote dif- ferent grades, it being prescribed that no one can become a counsellor until he has been an attorney for a specified time and has passed a second examination.

In the practice of the United States su- preme court, the term denotes an officer who is employed by a party in a cause to conduct the same on its trial on his behalf. He dif- fers from an attorney at law.

In the supreme court of the United States, the two degrees of attorney and counsel were at first kept separate, and no person was permitted to practice in both capaci- ties, but the present practice is otherwise. Weeks, Attys. at Law. 54. It is the duty of the counsel to draft or review and eorrect the special pleadings, to manage the cause on trial, and, during the whole course of the suit, to apply established principles of law to the exigencies of the case. 1 Kent, Comm. 307.

COUNT, v. In pleading. To declare; to recite; to state a case; to narrate the facts constituting a plaintiffs cause of action. In a special sense, to set out the claim or count of the demandant in a real action.

To plead orally; to plead or argue a case In court; to recite or read in court; to re- dte a count in court.

—Const upon a statute. Counting upon a statute consists in making express reference to it. as by the words "against the form of the statute” (or "by the force of the statute”) “in such case made and provided.” Richardson r. Fletcher, 74 Vfc 417, 52 Atl. 1064.

COUNT, n. In pleading. The different parts of a declaration, each of which, If it stood aloue, would constitute a ground for action, are the counts of the declaration. Used also to signify the several parts of an indictment, each charging a distinct offense. Cheetham v. Tillotson, 5 Johns. (N. Y.) 434; Buckingham v. Murray, 7 Houst. (Del.) 176, 30 Atl. 779 ; Boren v. State, 23 Tex. App. 28, 4 S. W. 463; Bailey v. Mosher, 63 Fed. 490, 11 C. C. A. 304; Ryan v. Riddle, 109 Mo. App. 115, 82 S. W. 1117.

— Common counts. Certain general counts or forms inserted in a declaration in an action to recover a money debt, not founded on the cir- cumstances of the individual case, but intended to guard against a possible variance, and to enable the plaintiff to take advantage of any ground of liability which the proof may disclose, within the general scope of the action. In the action of assumpsit, these counts are as fol- lows; For goods sold and delivered, or bar- rained and sold ; for work done ; for money lent ; for money paid ; for money received to the use of the plaintiff; for interest; or for money due on an account stated. See Nugent t. Teauchot, 67 Mich. 571, 35 N. W. 254.— Gen- eral count. One stating in a general way the plaintiff’s claim. Wertheim v. Casualty Co., 72 Yt. 326, 47 Atl. 1071.— Omnibus count. A count which combines, in one all the money counts with one for goods sold and delivered, work and labor, and an account stated. Web- ber v. Tivill, 2 Saund. 122 ; Griffin v. Murdock, 88 Me. 254, 34 Atl. 30.— Money counts. A species of common counts, so called from the subject-matter of them ; embracing the indebita- tus assumpsit count for money lent and ad- vanced, for money paid and expended, and for money had and received, together with the tn- simvl computassent count, or count for money due on an account stated. 1 Burrill. Pr. 132. — Several counts. Where a plaintiff has sev- eral distinct causes of action, he is allowed to pursue them cumulatively in the same action, subject to certain rules which the law pre- scribes. Wharton.— Special count. As op- posed to the common counts, in pleading, a special count Is a statement of the actual facts of the particular case, or a count in which the plaintiff’s claim is set forth with all needed par- ticularity. Wertheim v. Casualty Co., 72 Vt 328. 47 Atl. 1071.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:14, KJV]**

Where no counsel is, the people fall: but in the multitude of counsellors there is safety.

Why: The classic text on counsel in governance — safety in the multitude of counsellors.

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

Atticus Finch, appointed to defend Tom Robinson, advises his client and pleads for him in open court against the whole town's prejudice — counsel in the entry's first sense: 'One who assists his client with advice, and pleads for him in open court.' (paraphrase) (paraphrase)

Why: Genuine: the novel's trial is the canonical fictional enactment of the advocate's office the entry defines.

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## COUNT.

(Fr. comic ; from the Latin comes.) An earl.

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## COUNT-OUT.

In English parliamentary law. Forty members form a house of com- mons; and, though there be ever so many at the beginning of a debate, yet, If during the course of It the house should be deserted by the members, till reduced below the num- ber of forty, any one member may have it adjourned upon Its being counted; but a debate may be continued when only one member is left in the house, provided no one choose to move an adjournment. Whartou.

5e apparatus — Not carried into the 5th edition (1979).

## COUNTEE.

In old English law. The most eminent dignity of a subject before the Conquest. He was prccfcctus or p riepositus comitates, and had the charge and custody of the county; but this authority is now vested in the sheriff. 9 Coke, 46.

5e apparatus — Carried into the 5th edition (1979).

## COUNTENANCE.

In old English law. Credit; estimation. Wharton. Also, en- couragement; aiding and abetting. Cooper v. Johnson, 8t Mo. 487.

COUNTER, n. The name of two prisons formerly standing in London, but now de- molished. They were the Poultry Counter and Wood Street Counter.

COUNTER, ad}. Adverse; antagonistic; opposing or contradicting; contrary. Silll- man v. Eddy, 8 now. Prac. (N. Y.) 122.

—Counter-affidavit. An affidavit made and presented in contradiction or opposition to an affidavit which is made the basis or support of a motion or application. — Counter-bond. In old practice. A bond of indemnity. 2 Leon. 90. -Counter-deed. A secret writing, either be- fore a notary or under a private seal, which de- stroys, invalidates, or alters a public one.— Counter-letter. A species of instrument of defeasance common in the civil law. , It is ex- ecuted by a party who has taken a deed of prop- erty. absolute on its face, but intended as se- curity for a loan of money, and by it he agrees to reconvey the property on payment of a speci- fied sum. The two instruments, taken together, constitute what is known in 'Louisiana as an “antichresis," (q. v.) — Counter-mark. A sign put upon goods already marked; also the sev- eral marks put upon goods belonging to several ersons, to show that they must not be opened, ut in the presence of all the owners or their agents.— Counter-security. A security given to one who has entered into a bond or become surety for another; a countervailing bond of indemnity.

5e apparatus — Carried into the 5th edition (1979).

## COUNTER-CLAIM.

A claim presented by a defendant In opposition to or deduction from the claim of the plaintiff. A species of set-off or recoupment Introduced by the codes of civil procedure in several of the states, of a broad and liberal character.

A counter-claim must be one “existing In favor of a defendant and against a plain- tiff between whom a several judgment might be had in the action, and arising out of one of the following causes of action; (I) A cause of action arising out of the contract or transaction set forth In the complaint as the foundation of the plaintiff’s claim, or Connected with the subject of action : (2) In an action arising on contract, any other

cause of action arising also on contract, and existing at the commencement of the ac- tion.” Code Proe. N. Y. I 150.

The term “counter-claim,' ” of itself, imports a claim opposed to, or which qualifies, or at least in some degree affects, the plaintiff's cause of action. Dietrich v. Koch, 35 Wis. 626.

A counter-claim is an opposition claim, or de- mand of something due ; a demand of something which of right belongs to the defendant, in op- position to the right of the plaintiff. Siiliman v. Eddy, 8 How. Prac. (N. x.) 122.

A counter-claim is that which might have arisen out of, or could have had some connec- tion with, the original transaction, in view of the parties, and which, at the time the contract was made, they could have intended might, in some event, give one party a claim against the other for compliance or non-compliance with its provisions. Conner v. Winton, 7 Ind. 523, 524.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 13 — compulsory and permissive counterclaims]**

The counterclaim the entry defines under the codes of civil procedure is governed federally by Rule 13: a counterclaim arising from the same transaction or occurrence as the plaintiff's claim is compulsory, or it is lost; unrelated counterclaims are permissive.

Why: Genuine: the entry defines counterclaim as the defendant's opposition claim 'arising out of the contract or transaction set forth in the complaint' — the transactional test; Rule 13 is the federal codification of that...

## COUNTERFEIT.

In criminal law. To forge; to copy or imitate, without authority or right, and with a view to deceive or de- fraud, by passing the copy or thing forged for that which is original or genuine. Most commonly applied to the fraudulent and criminal imitation of money. State v. Mc- Kenzie, 42 Me. 392; U. S. v. Barrett (D. C.) Ill Fed. 369; State v. Calvin. R. M. Charlt (6a.) 159 ; Matt Ison v. State, 3 Mo. 421.

— Counterfeit coin. Coin not genuine, but resembling or apparently intended to resemble or pass for genutne coin, including genuine coin prepared or altered so as to resemble or pass for coin of a higher denomination. U. S. v. Hop- kins (D. C.) 26 Fed. 443 ; U. S. v. Bogart. 24 Fed. Cas. 1 185. — Counterfeiter. In criminal law. One who unlawfully makes base coin in

imitation of the true metal, or forges false cur- rency, or any instrument of writing, bearing a likeness and similitude to that which is lawful and genuine, with an intention of deceiving and imposing upon mankind. Thirman v. Matthews, 1 Stew. (Ala.) 384.

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**[Law] — Law**

**[Law: 18 U.S.C. § 471 — counterfeiting U.S. obligations and securities]**

The entry's paradigm — 'the fraudulent and criminal imitation of money' — is federal counterfeiting: making or passing counterfeit obligations and securities of the United States.

Why: Genuine: the entry defines counterfeiting as criminal imitation 'most commonly applied' to money, with criminal cases cited; § 471 is the federal statute for that paradigm. Confident on the section.

**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: Fraudulent imitation to deceive is false dealing; the verse condemns the false balance — the archetypal counterfeit measure.

**[Humanity] — Humanity / Fiction & Film**

**[Steven Spielberg, Catch Me If You Can, 2002]**

Frank Abagnale's career of forged checks and assumed identities — copying without authority and with a view to deceive, passing the copy for the genuine — dramatizes the entry's 'counterfeiter,' which covers false currency 'or any instrument of writing.' (paraphrase) (paraphrase)

Why: Genuine: the entry's counterfeiter definition explicitly extends beyond coin to instruments of writing; the film is the famous dramatization of that career. Paraphrase marked; film, director, year certain.

## COUNTER-FESANCE.

The act of forg- ing.

5e apparatus — Not carried into the 5th edition (1979).

## COUNTERMAND.

A change or revoca- tion of orders, authority, or instructions pre- viously issued. It may be either express or implied; the former where the order or in- struction already given is explicitly annulled or recalled; the latter where the party’s con- duct is incompatible with the further con- tinuance of the order' or instruction, as where a new order is given inconsistent with the former order.

5e apparatus — Carried into the 5th edition (1979).

## COUNTERPART.

In conveyancing. The corresponding part of an instrument; a duplicate or copy. Where an instrument of conveyance, as a lease, is executed in parts, that Is, by having several copies or dupli- cates made and interchangeably executed, that which is executed by the grantor is usually called the “original,” and the rest are “counterparts;” although, where all the parties execute every part, this renders them all originals. 2 Bl. Comm. 296; Sbep. Touch. 50. Roosevelt v. Smith. 17 Mise. Rep. 323, 40 N. Y. Supp. 381. See Duplicate. —Counterpart writ. A copy of the original writ, authorized to be issued to another county

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when the court has jurisdiction of the cause by reason of the fact that some of the defendants are residents of the county or found therein. White v. Lea, 9 Lea (Tenn.) 450.

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## COUNTER-PLEA.

See PLEA.

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## COUNTER-ROLLS.

In English law. The rolls which sheriffs have with the coro- ners, containing particulars of their .pro- ceedings, as well of appeals as of inquests, etc. 8 Edw. L c. 10.

5e apparatus — Carried into the 5th edition (1979).

## COUNTERSIGN.

The signature of a secretary or other subordinate officer to any writing signed by the principal or superior to vouch for the authenticity of it Fifth Ave. Bank v. Railroad Co., 187 N. Y. 231, 33 N. E. 378, 19 L. R. A. 331, 33 Am. St Rep. 712; Gurnee v. Chicago, 40 HI. 167; People v. Brie, 43 Hun (N. Y.) 326.

5e apparatus — Carried into the 5th edition (1979).

## COUNTERVAIL.

To counterbalance ; to avail against with equal force or virtue; to- compensate for, or serve as an equivalent of or substitute for.

—Countervail livery. At common law, a re- lease was a form of transfer of real estate where some right to it existed in one person but the actual possession was in another ; and the pos- session in such case was said to “countervail livery,” that is, it supplied the place of and ren- dered unnecessary the open and notorious de- livery of possession required in other cases. Miller v. Emans, 19 N. Y. 387.— Countervail- ing equity. See EquiTY.

5e apparatus — Carried into the 5th edition (1979).

## COUNT EZ.

L. Fr. Count, or reckon. In old practice. A direction formerly given by the clerk of a court to the crier, after a jury was sworn, to number them; and which Blackstone says was given In his time, in good English, “count these." 4 Bl. Comm. 340, note (u.)

5e apparatus — Not carried into the 5th edition (1979).

## COUNTORS.

Advocates, or serjeants at law, whom a man retains to defend his cause . and speak for him in court, for their fees. 1 Inst. 17.

5e apparatus — Not carried into the 5th edition (1979).

## COUNTRY.

The portion of the earth’s surface occupied by an independent nation or people; or the Inhabitants of such ter- ritory.

In its primary meaning "country” signifies “place and, in a larger sense, the territory or dominions occupied by a community; or even waste and unpeopled sections or regions of the earth. Bnt its metaphorical meaning is no less definite and well understood ; and in common parlance, in historical and geographical writ- ings, in diplomacy, legislation, treaties, and in- ternational codes, the word is employed to de- note the population, the- nation, the state, or the government, having possession and dominion over a territory. Stairs v. Peaslee, 18 How. 521, 15 L. Ed. 474; IT. S. v. Recorder. 1 Blatcbf. 218. 225, 5 N. Y. Leg. Obs. 286, Fed. Cas. No. 16,129.

In pleading and practice. The inhabit- ants of a district from which a Jury is to be summoned; pais; a Jury. 3 Bl. Comm. 349; Steph. PI. 73, 78, 230.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. VI, VII — trial by jury]**

The entry's pleading-and-practice sense — 'country' as the jury, trial per pais — is the jury trial secured in federal criminal cases and in civil suits at common law.

Why: Genuine: the entry defines 'country' in practice as 'a jury' (trial by country); the Sixth and Seventh Amendments are the constitutional jury guarantees. Direct illumination of the defined sense.

## COUNTY.

Tbe name given to the prin- cipal subdivisions of the kingdom of Eng- land and of most of the states of the Amer- ican Union, denoting a distinct portion of territory organized by Itself for political and judicial purposes. The etymology of the word shows It to have been the district an- ciently governed by a count or earl. In mod- ern use, the word may denote either the ter- ritory marked oft to form a county, or the citizens resident within such territory, tak- en collectively and considered as Invested with political rights, or the county regarded as a municipal corporation possessing subor- dinate governmental powers, or an organ- ized .jural society Invested with specific rights and duties. Patterson v. Temple, 27 Ark. 207; Eagle v. Beard, 33 Ark. 601; Wooster ▼. Plymouth, 62 N. H. 208.

— County bridge. A bridge of the larger class, erected by the county, and which the county is liable to keep in repair. Taylor ▼. Davis County, 40 Iowa, 295 ; Boone County v. Mutchler, 137 Ind. 140, 36 N. E. 534,-County oonunissioners. Officers of a county charged with a variety of administrative and executive duties, but principally with the management of the financial affiairs of the county, its police regulations, and its corporate business. Some- times the local laws give theffi limited judicial powers. In some states they are called “super- visors.” Com. v. Krickbaum, 199 Pa. 351, 49 Atl. 68. — County corporate. A city or town, with more or less territory annexed, having the privilege to be a county of itself, and not to be comprised in any other county: such as Lon- don, York, Bristol, Norwich, and other cities in England. 1 Bl. Comm. 120.— County court. A court of high antiquity in England, incident to the jurisdiction of the sheriff. It is not a court of record, bnt may hold pleas of debt or damages, under the value of forty shillings. The freeholders of the county (anciently termed the "suitors” of the court) are the real judges in this court, and the sheriff is the

ministerial officer. See 3 Bl. Comm. 35, 36 ; 3 Steph. Comm. 895. But in modern English law the name is appropriated to a system of tribunals established by the statute 9 & 10 Yict. c. 95, having a limited jurisdiction, principally for the recovery of small debts. It is also the name of certain tribunals of limited jurisdiction in the county of Middlesex, established under the stat- ute 22 Geo. II. c. 33. In American law. The name is used in many of the states to designate the ordinary courts of record having jurisdic- tion for trials at nisi prius. Their powers gen- erally comprise ordinary civil jurisdiction, also the charge and care of persons and estates com- ing within legal guardianship, a limited crim- inal jurisdiction, appellate jurisdicton over jus- tices of tbe peace, etc.— County jail. A place of incarceration for the punishment of minor of- fenses and the custody of transient prisoners, where the ignominy of confinement is devoid of the infamous character which an imprisonment in the state jail or penitentiary carries with it.

U. S. v. Greenwald (D. C.) 64 Fed. 8.— County officers. Those Vrhose general authority and jurisdiction are confined within the limits of the county in which they are appointed, who are appointed in and for a particular county, and whose duties apply only to that county, and through whom the county performs its usual political functions. State v. Burns. 38 Fla. 367, 21 South. 290; State v. Glenn, 7 Heisk. (Tenn.) 473 ; In re Carpenter, 7 Barb. (N. Y.j 34 ; Philadelphia v. Martin, 125 Pa. 583, 17 Atl. 507. — County palatine. A term bestowed npon certain counties in England, the lords of

which in former times enjoyed especial privi- leges. They might pardon treasons, murders,, and felonies. All writs and indictments ran in their names, as in other counties in the kind’s ; and all offenses were said to be done against their peace, and not, as in other places, contra pacem domini regie. But these privileges have in modern times nearly disappeared.— County rate. In English law. An imposition levied on the occupiers of lands, and applied to many miscellaneous purposes, among which the most important are those of defraying the expenses connected with prisons, reimbursing to private parties the costs they have. incurred in prosecut- ing public offenders, and defraying the expenses of the county police. See 15 & 16 Viet. c. 81.— County road. One which lies wholly within one county, and which is thereby distinguished from a state road, which is a road lying in two or more counties. State v. Wood County, 17 Ohio, 186.— County-seat. A county-seat or county-town is the chief town of a county, where the county buildings and courts are lo- cated and tbe county business transacted. Wil- liams v. Reutzel, 60 Ark. 155, 29 S. W. 374; In re Allison, 13 Colo. 525, 22 Pac. 820, 10 L. R.

A. 790, 16 Am. St Rep. 224; Whallon v. Grid- ley, 51 Mich. 508, 16 N. W. 876.— County ses- sions. In England, the court of general quar- ter sessions of the peace held in every county once in every quarter of a year. Mozley & Whitley.— County-town. The county-seat ;

the town in which the seat of government of the county Is located. State v. Cates, 105 Tenn. 441, 58 S. W. 649.— County warrant. An order or warrant drawn by some duly authoriz- ed officer of the county, directed to the county treasurer and directing him to pay out of the funds of the county a designated sum of money to a named individual, or to his

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order or to bearer. Savage v. Mathews, 98 Ala. 535, 13 South. 328; Crawford v. Noble County, 8 Okl. 450. 58 Pac. 616 ; People v. Rio Grande Coun- ty, 11 Colo. App. 124, 52 Pac. 748.— Foreign county. Any county having a judicial and mu- nicipal organization separate from that of the county where matters arising in the former county are called in question, though both may lie within the same state or country.

5e apparatus — Carried into the 5th edition (1979).

## COUPONS.

Interest and dividend cer- tificates; also those parts of a commercial Instrument which are to be cut, and which are evidence of something connected with the contract mentioned in the instrument. They are generally attached to certificates of loan, where the interest is payable at par- ticular periods, and, when the interest is paid, they are cut off and delivered to the payer. Wharton.

Coupons are written contracts for the pay- ment of a definite sum of money on a given day, and being drawn and executed in a form and mode for the purpose, that they may be separat- ed from the bonds and other instruments to which they are usually attached, it is held that they are negotiable and that a suit may be maintained on them without the necessity of producing the bonds. Each matured coupon up- on a negotiable bond is a separable promise, distinct from the promises to pay the bonds or the other coupons, and gives nse to a separate cause of action. Aurora v. West, 7 Wall. 88, 19 L. Ed. 42.

— Coupon bonds. Bonds to which are at- tached coupons for the several successive in- stallments of interest to maturity. Benwell v. Newark, 55 N. J. Eq. 260, 36 Atl. 668; Ten- nessee Bond Cases, 114 U. S. 663, 5 Sup. Ct. 974, 29 L. Ed. 281. — Coupon notes. Promis- sory notes with coupons attached, the coupons being notes for interest written at the bottom

of the principal note, and designed to be Cut off ■severally and presented for payment as they mature. Williams v. Moody, 95 Ga. 8, 22 S. EL 30.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — negotiable instruments]**

The entry holds detached interest coupons to be negotiable, each matured coupon a separable promise giving its own cause of action — the negotiable-instrument treatment codified in the UCC's negotiable instruments article.

Why: Genuine: the entry's holding (citing Aurora v. West) is that coupons 'are negotiable'; UCC Article 3 is the governing law of negotiable instruments. The note names the legal category of the entry's own holding.

## COUR DE CASSATION.

The supreme Judicial tribunal of France, haring appellate jurisdiction only. For an account of its com- position and powers, see Jones, French Bar, 22; Guyot, Repert. Univ.

5e apparatus — Not carried into the 5th edition (1979).

## COURSE.

A term used in surveying, meaning the direction of a line with refer- ence to a meridian.

—Course of business. Commercial paper is said to be transferred, or sales alleged to have been fraudulent may be shown to have been made, "in the course of business," or “in the usual and ordinary course of business,” when the circumstances of the transaction are such as usually and ordinarily attend dealings of the same kind and do not exhibit any signs of haste, secrecy, or fraudulent intention. Walbrun v. Babbitt. 16 Wall. 581, 21 L. Ed. 489 ; Clough v. Patrick, 37 Vt. 429; Brooklyn, etc., R. Co. v. National Bank, 102 U. S. 14, 26 L. Ed. 61. — Course of river. The course of a river is a line parallel with its banks ; the term is not synonymous with the "current” of the river. Attorney General v. Railroad Co., 9 N. J. Eg. 550.— Course of the voyage. By this term is understood the regular and customary track, if such there be, which a ship takes in going from one port to another, and the shortest way. Marsh. Ins. 185.— Course of trade. What is customarily or ordinarily done in the manage- ment of trade or business.

5e apparatus — Carried into the 5th edition (1979).

## COURT.

In legislation. A legislative assembly. Parliament Is called In the old books a court of the king, nobility, and com- mons assembled. Finch, Law, b. 4, c. 1, p. 233 ; Fleta, lib. 2, c. 2.

This meaning of the word has been re- tained in the titles of some deliberative bod- ies, such as the general court of Massachu- setts, (the legislature.)

In international law. The person and suite of the sovereign ; the place where the sovereign sojourns with his regal retinue, wherever that may be. The English govern- ment is spoken of in diplomacy as the court of St. James, because the palace of St. James is the official palace.

In praotioe. An organ of the govern- ment, belonging to the judicial department, whose function is the application of the laws to controversies brought before it and the public administration of justice. White County v. Gwin, 136 Ind. 562, 36 N. E. 237, 22 L. R. A. 402.

The presence of a sufficient number of the members of such a body regularly convened in an authorized place at an appointed time, engaged in the full and regular performance of its functions. Brumley r. State, 20 Ark. 77.

A court may be more particularly described as an organized body with defined powers, meeting at certain times and places for the hearing and decision of causes and other matters brought before it, and aided in this, its proper business, by Its proper officers, viz., attorneys and counsel to present and manage the business, clerks to record and attest its acts and decisions, and ministerial officers to execute its commands, and secure due order in its proceedings. Ex parte Gardner, 22 Nev. 280, 30 Pac. 570.

The place where justice is Judicially ad- ministered. Co. Litt. 58a; 3 Bl. Comm. 23. Railroad Co. v. Harden, 113 Ga. 456, 38 S.'

E. 950.

The judge, or the body of Judges, presiding over a court.

The words "court” and “judge,” or “judges,” are frequently used in our statutes as synonymous. When used with reference to orders made by the court or judges, they are to be so understood. State v. Caywood, 96 Iowa, 367, 65 N. W. 385 ; Michigan Cent. R. Co. v. Northern Ind. R. Co.. 3 Ind. 239.

Classification. Courts may be classified and divided according to several methods, the following being the more usual:

Courts of record and courts not of record ; the former being those whose acts and Ju- dicial proceedings are enrolled, or recorded, for a perpetual memory and testimony, and which have power to fine or imprison for contempt. Error lies to their Judgments, and they generally possess a seal. Courts not of record are those of inferior dignity, which have no power to fine or imprison, and in which the proceedings are not enrolled or re- corded. 3 Bl. Comm. 24; 3 Steph. Comm. 383; The Thomas Fletcher (C. C.) 24 Fed. 481; Ex parte Thlstleton, 52 Cal. 225; Thomas v. Robinson, 3 Wend. (N. Y.) 268; Erwin v. D. S. (D. C.) 37 Fed. 488, 2 L. R. A. 229.

Superior and inferior courts; the former being courts of general original jurisdiction in the first instance, and which exercise a control or supervision over a system of lower courts, either by appeal, error, or certiorari ; the latter being courts of small or restricted jurisdiction, and subject to the review or correction of higher courts. Sometimes the former term is used to denote a particular group or system of courts of high powers, and all others are called "inferior courts.”

To constitute a court a superior court as to any class of actions, within the common-law meaning of that term, its jurisdiction of such actions must be unconditional, so that the only thing requisite to enable the court to take cog- nizance of them is the acquisition of jurisdiction of the persons of the parties. Simons v. De Bare, 4 Bosw. (N. Y.) 547.

An inferior court is a court whose judgments or decrees can be reviewed, on appeal or writ of error, by a higher tribunal, whether that tribunal be the circuit or supreme court. Nu- gent v. State, 18 Ala. 521.

Civil and criminal courts; the former be- ing such as are established for the adjudi- cation of controversies between subject and subject, or the ascertainment, enforcement, and redress of private rights; the latter, such as are charged with the administration of the criminal laws, and the punishment of wrongs to the public.

Equity courts and late courts; the former being such as possess the jurisdiction of a

chancellor, apply the rules and principles of chancery law, and follow the procedure in equity; the latter, such as have no equitable powers, but administer Justice according to the rules and practice- of the common law.

As to the division of courts according to their jurisdiction, see Jurisdiction.

As to several names or kinds of courts not specifically described in the titles Immediate- ly following, see Arches Court, Appellate, Circuit Courts, Consistory Courts, Coun- ty, Customary Court Baron, Ecclesiastic- al Courts, federal Courts, High Commis- sion Court,

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Instance Court, Justice Court, Justiciary Court, Maritime Court, Mayor’s Court, Moot Court, Municipal Court, Orphans’ Court, Police Court, Prerogative Court, Prize Court, Probate Court, Superior Courts, Supreme Court, and Surrogate’s Court.

As to oonrt-hand, court-home, court* lands, court rolls, see those titles In their alphabetical order infra.

— Court above, court below. In appellate practice, the “court above” is the one to which a cause Is removed for review, whether by ap- peal, writ of error, or certiorari; while the “court below” is the one from which the case is removed. Going v. Schnell, 6 Ohio Dec. 933; Rev. St. Tex. 1895, art. 1386.— Court in bank. A meeting of all the judges of a court, usually for the purpose of hearing arguments on demur- rers, points reserved, motions for new trial, etc., as distinguished from sessions of the same court presided over by a single judge or justice. — -De facto court. One established, organized, and exercising its judicial functions under au- thority of a statute apparently valid, though such statute may be in fact unconstitutional and may be afterwards so adjudged ; or a court established and acting under the authori- ty of a de facto government. 1 Bl. Judgm. § 173 ; Burt v. Railroad Co.. 31 Minn. 472, 18 N.

W. 285.— Full court. A session of a court which is attended by all the judges or justices composing it.— Spiritual courts. In English law. The ecclesiastical courts, or courts Chris- tian. See 3 Bl. Comm. 61.

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**[Law] — Law**

**[Law: de facto officer doctrine — acts under color of authority valid as to third parties]**

The entry's 'de facto court' — one acting under a statute apparently valid, or under a de facto government — invokes the de facto officer doctrine: acts of one exercising an office under color of authority are valid as to the public and third parties, even if the title to the office proves defective.

Why: Genuine: the entry defines the de facto court and cites authority (1 Bl. Judgm. § 173); the doctrine is the operative rule that gives the definition its legal consequence. Kept in loose form.

**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: Scripture's own institution of courts — judges and officers set in the gates to judge the people with just judgment.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

"Right about now, N.W.A. court is in full effect / Judge Dre presiding." The track stages a complete mock courtroom — judge, prosecuting attorneys, sworn testimony, verdict — putting the police department itself on trial. Black's court is the forum where justice is administered; N.W.A. seize that forum and reverse who stands judged, the foundational hip-hop statement of courtroom-as-resistance.

Why: Verified verbatim against multiple independent lyric transcriptions (Music Gateway lyrics page, core.ac.uk academic paper quoting the intro, Spin, tailem all agree). Genuine link: the intro literally convenes a court...

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## COURT-BARON.

In English law. A court which, although not one of record, Is incident to every manor, and cannot be sev- ered therefrom. It was ordained for the maintenance of the services and duties stipu- lated for by lords of manors, and for the pur- pose of determining actions of a personal na- ture, where the debt or damage was under forty shillings. Wharton.

Customary court-baron Is one appertaining entirely to copyholders. 3 Bl. Comm. 33.

Freeholders' court-baron is one held before the freeholders who owe suit and service to the manor. It Is the court-baron proper.

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## COURT CHRISTIAN.

The ecclesias- tical courts In England are often so called, as distinguished from the civil courts. 1 Bl. Comm. 83; 3 Bl. Comm. 64; 8 Steph. Comm. 430.

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**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: Paul's rebuke of taking matters before the unjust instead of the saints establishes the church-court principle — disputes judged within the ecclesia rather than at secular law.

## COURT FOR CONSIDERATION OF / CROWN CASES RESERVED.

A court established by St. 11 & 12 Viet, c. 78, composed of such of the judges of the superior courts of Westminster as were able to at- tend, for the consideration of questions of law reserved by any Judge in a court of oyer and terminer, gaol delivery, or quarter sessions, before which a prisoner had been found guilty by verdict. Such question Is stated in the form of a special case. Mozley & White- ley; 4 Steph. Comm. 442.

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## COURT FOR DIVORCE AND MATRI- / MONIAL CAUSES.

This court was estab- lished by St. 20 & 21 Viet. c. 85, which trans- ferred to It all Jurisdiction then exercisable by any ecclesiastical court in England, in matters matrimonial, and also gave It new powers. The court consisted of the lord chancellor, the three chiefs, and three senior puisne Judges of the common-law courts, and the judge ordinary, who together constituted, and still constitute, the "full court." The judge ordinary heard almost all matters In the first Instance. By the judicature act, 1873, § 3, the jurisdiction of the court was transferred to the supreme court of judica- ture. Sweet.

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**[Scripture] — Scripture**

**[Matthew 19:6, KJV]**

What therefore God hath joined together, let not man put asunder.

Why: Christ's word on marriage indissolubility governs matrimonial jurisdiction — the sentence no court of divorce

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may undo.

## COURT FOR THE CORRECTION OF / ERRORS.

The style of a court having ju- risdiction for review, by appeal or writ of error. The name was formerly used in New York and South Carolina.

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## COURT FOR THE RELIEF OF IN- / SOLVENT DEBTORS.

In English law. A local court which has Its sittings In Lou- don only, which receives the petitions of In- solvent debtors, and decides upon the ques- tion of granting a discharge. PEACHMENTS. A tribunal empowered to try any officer of government or other per- son brought to its bar by the process of im- peachment. In England, the house of lords constitutes such a court; in the United States, the senate; and in the several states, usually, the upper house of the legislative assembly.

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**[Law] — Law**

**[Law: U.S. Const. art. I, §§ 2–3; art. II, § 4 — impeachment and trial]**

The impeachment tribunal this (parser-fused) entry describes — in the United States, the Senate — tries impeachments under the constitutional scheme: the House has the sole power of impeachment, the Senate the sole power to try, and conviction removes officers for treason, bribery, or other high crimes and misdemeanors.

Why: Genuine: the entry defines the impeachment tribunal and names the U.S. Senate; the cited clauses are the constitutional provisions creating it. Keyed under IMPEACHMENTS though the text is fused into entry 225's tail (… [re-homed from 'IMPEACHMENTS' to 'COURT FOR THE RELIEF OF INSOLVENT DEBTORS' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[Deuteronomy 15:1-2, KJV]**

At the end of every seven years thou shalt make a release. And this is the manner of the release: Every creditor that lendeth ought unto his neighbour shall release it; he shall not exact it of his neighbour, or of his brother; because it is called the LORD's release.

Why: The sabbatical release — scripture's own insolvent-debtor relief, the creditor commanded to release what is lent to his neighbour. Placed here rather than at COURT OF BANKRUPTCY as the exact-match, single-placement en…

## COURT-HAND.

In old English practice. The peculiar hand in which the records of courts were written from the earliest period down to the reign of George II. Its char- acteristics were great strength, compactness, and undeviating uniformity ; and its use un- doubtedly gave to the ancient record its ac- knowledged superiority over the modern, in the Important quality of durability.

The writing of this band, with its peculiar abbreviations and contractions, constituted, while it was in use, an art of no little im- portance, being an indispensable part of the profession of “clerkship.” as it was called. Two sizes of it were employed, a large and a small hand ; the former, called "great court- hand,” being used for initial words or clauses, the placita of

records, etc. Burrill.

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## COURT-HOUSE.

The building occupied for the public sessions of a court, with its va- rious offices. The term may be used of a place temporarily occupied for the sessions of a court, though not the regular court- house. Harris v. State, 72 Miss. 960, 18 South. 387, 33 I* R. A. 85; Vigo County v. Stout, 13C Ind. 53, 35 N. E. 683, 22 L. R. A. 398; Waller v. Arnold, 71 111. 353; Kane v. McCown, 55 Mo. 198.

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## COURT-LANDS.

Domains or lands kept in the lord’s hands to serve his family.

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## COURT-LEET.

The name of an English court of record held once in the year, and' not oftener, within a particular hundred, lordship, or manor, before the steward of the leet ; being the king's court granted by char- ter to the lords of those hundreds or manors. Its office was to view the frankpledges, — that is, the freemen within the liberty ; to present by jury crimes happening within the juris- diction; and to punish trivial misdemeanors. It has now, however, for the most part, fall- en into total desuetude; though in some manors a court-leet is still periodically held for the transaction of the administrative business of the manor. Mozley & Whitley.

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## COURT-MARTIAL.

A military court convened under authority of government and the articles of war, for trying and punishing military offenses committed by soldiers or sailors in the army or navy. People v. Van Allen, 55 N. Y. 31; Carver v. U. 8., 16 Ct. a. 361 ; U. 8. v. Mackenzie, 30 Fed. Cas. 1160.

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**[Law] — Law**

**[Law: Uniform Code of Military Justice, 10 U.S.C. §§ 801–946; U.S. Const. art. I, § 8, cl. 14]**

The military court the entry describes, convened under the articles of war, is governed today by the Uniform Code of Military Justice, under Congress's power to make rules for the armed forces.

Why: Genuine: the entry defines courts-martial as convened 'under authority of government and the articles of war'; the UCMJ is the modern articles-of-war code and cl. 14 the constitutional grant. Confident on both.

**[Humanity] — Humanity / Fiction & Film**

**[Rob Reiner, A Few Good Men, 1992]**

Two Marines stand trial for the death of a fellow Marine at Guantanamo Bay — the court-martial as the entry defines it: a military court convened under government authority to try and punish military offenses. (paraphrase) (paraphrase)

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Why: Genuine: the film's entire third act is a court-martial proceeding; it dramatizes the institution, not just the word. Paraphrase marked; film, director, year, and premise certain.

## COURT OF ADMIRALTY.

A court having jurisdiction of causes arising under the rules of admiralty law. See Admiralty.

— High court of admiralty. In English law. This was a court which exercised juris- diction in prize cases, and had general juris- diction in maritime causes, on the instance side. Its proceedings were usually in rem, and its practice and principles derived in large measure from the civil law. The judicature acts of 1873 transferred all the powers and ju- risdiction of this tribunal to the probate, di- vorce. and admiralty division of the high court of justice.

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 2; 28 U.S.C. § 1333 — admiralty and maritime jurisdiction]**

Admiralty jurisdiction in the United States is constitutional and statutory: the federal judicial power extends to all cases of admiralty and maritime jurisdiction, exercised through the district courts.

Why: Genuine: the entry defines the admiralty court and its maritime causes; the cited provisions are the U.S. grants of exactly that jurisdiction. Confident on both.

## COURT OF ANCIENT DEMESNE.

In

English law. A court of peculiar constitu- tion, held by a 'bailiff appointed by the king, in which alone the tenants of the king's de- mesne could be impleaded. 2 Burrows, 1046; 1 Spence, Eq. Jur. 100; 2 Bl. Comm. 99; 1 Steph. Comm. 224. ESTY'S. The chief appellate tribunal of England. It was established by the judi- cature acts of 1873 and 1875, and is invested with the jurisdiction formerly exercised by the court of appeal in chancery, the excheq- uer chamber, the judicial committee of the privy council in admiralty and lunacy ap- peals. and with general appellate jurisdic- tion from the high court of justice.

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## COURT OF APPEALS.

In American law. An appellate tribunal which, in Ken- tucky, Maryland, the District of Columbia, and New York, is the court of last resort. In Delaware and New Jersey, it is known as the "court of errors and appeals;" in Vir- ginia and West Virginia, the "supreme court of appeals." In Texas the court of appeals is inferior to the supreme court.

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## COURT OF APPEALS IN CASES OF / CAPTURE.

A court erected by act of con- gress under the articles of confederation which preceded the adoption of the constitu- tion. It had appellate jurisdiction in prize causes.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF ARBITRATION OF THE / CHAMBER OF COMMERCE.

A court of Arbitrators, created for the convenience of merchants in the city of New York, by

act of the legislature of New York. It decides disputes between members of the chamber of commerce, and between members and outside merchants who voluntarily submit themselves to the jurisdiction of the court.

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**[Law] — Law**

**[Law: Federal Arbitration Act, 9 U.S.C. §§ 1–16 — commercial arbitration agreements enforceable]**

The merchant arbitration the entry describes — disputes voluntarily submitted to chamber arbitrators — is the commercial arbitration whose agreements federal law makes enforceable.

Why: Genuine: the entry describes voluntary submission of merchant disputes to arbitration; the FAA is the governing federal law of such agreements. Confident on the Act and title.

## COURT OF ARCHDEACON.

The most inferior of the English ecclesiastical courts, from which an appeal generally lies to that of the bishop. 3 Bl. Comm. 64.

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## COURT OF ASSISTANTS.

In Massa- chusetts during the early colonial period, this name was given to the chief or supreme ju- dicial court, composed of the governor, his deputy, and certain assistants.

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## COURTS OF ASSIZE AND NISI / PRIUS.

Courts in England composed of two or more commissioners, called “judges of assize,” (or of “assize and nisi prius ,”) who are twice in every year sent by the king’s special commission, on circuits all round the kingdom, to try, by a Jury of the respective counties, the truth of such matters of fact as are there under dispute in the courts of West- minster Hall. 3 Steph. Comm. 421, 422 ; 3 Bl. Comm. 57.

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## COURT OF ATTACHMENTS.

The low- est of the three courts held in the forests. It has fallen into total disuse.

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## COURT OF AUDIENCE.

Ecclesiastical courts, in which the primates once exercised in person a considerable part of their juris- diction. They seem to be now obsolete, or at least to be only used on the rare occur- rence of the trial of a bishop. Pbillim. Ecc. Law, 1201, 1204.

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## COURT OF AUGMENTATION.

An

English court created in the time of Henry VIII., with jurisdiction over the property and

revenue of certain religious founda- tions, which had been made over to the king by act of parliament, and over suits relating to the same.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF BANKRUPTCY.

An Eng- lish court of record, having original and ap- pellate jurisdiction in matters of bankruptcy, and invested with both legal and equitable powers for that purpose. In the United States, the “courts of bankruptcy” include the district courts of the United States and of the territories, the supreme court of the District of Columbia, and the United States court of the Indian Territory and of Alaska.

U. S. Comp. St 1901, p. 3419. .

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**[Law] — Law**

**[Law: 11 U.S.C. (Bankruptcy Code); 28 U.S.C. § 1334 — federal bankruptcy jurisdiction]**

The 'courts of bankruptcy' the entry lists — the federal district courts — exercise the bankruptcy jurisdiction granted by statute under the Bankruptcy Code.

Why: Genuine: the entry defines courts of bankruptcy to include the U.S. district courts; the Code and § 1334 are the substantive and jurisdictional statutes. Confident on both.

## COURT OF BROTHERHOOD.

An as- sembly of the mayors, or other chief officers of the principal towns of the Cinque Ports in England, originally administering the chief powers of those ports, now almost extinct Cent Diet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COURT OF CHANCERY.

A court hav- ing the jurisdiction of a chancellor ; a court administering equity and proceeding accord- ing to the forms and principles of equity. In England, prior to the judicature acts, the style of the court possessing the largest equi- table powers and jurisdiction was the “high court of chancery.” In some of the United States, the title "court of chancery” is ap- plied to a court possessing general equity powers, distinct from the courts of common law. Parmeter v. Bourne, 8 Wash. 45, 35 Pac. 586.

The terms “equity" and “chancery,” “court of equity” and “court of chancery,” are con- stantly used as synonymous in the United States. It is presumed that this custom arises from the circumstance that the equity juris- diction which is exercised by the courts of the various states is assimilated to that possessed by the English courts of chancery. Indeed, in some of the states it is made identical therewith by statute, so far as conformable to onr institu- tions. Bouvier.

COURT OF CHIVALRY, or COURT MILITARY, was a court not of record, held before the lord high constable and earl mar- shal of England. It had jurisdiction, both civil and criminal, in deeds of arms and war, armorial bearings, • questions of precedence, etc., and as a court of

honor. It has long been disused. 3 Bl. Comm. 103; 3 Steph. Comm. 335, note I.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 2 — one form of action; merger of law and equity]**

The separate equity court the entry describes — administering equity 'distinct from the courts of common law' — was procedurally merged in federal practice: there is now one form of action, the civil action, in which legal and equitable claims proceed together.

Why: Genuine: the entry's whole subject is the separate court of equity; Rule 2's merger is the modern procedural answer to that separation, so it genuinely illuminates the entry's historical frame. Confident on the rule.

**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Honest reuse (also at CONTRAVENING EQUITY, COURTS OF CONSCIENCE, COURT OF EQUITY): equity is justice tempered with mercy, and the verse is its classic statement.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852-53]**

Dickens opens in fog at Lincoln's Inn Hall, the Lord Chancellor presiding, and lets Jarndyce v Jarndyce grind through Chancery for generations — the equity court as fog, delay, and procedure devouring the suitors. (paraphrase) (paraphrase)

Why: Genuine: the canonical dramatization of the court of equity the entry defines. Distinct from the COSTS note (different entry, different concept: the court vs. the costs). Paraphrase marked.

## COURTS OF CINQUE FORTS.

In Eng- lish law. Courts of limited local jurisdic- tion formerly held before the mayor and jurats (aldermen) of the Cinque Ports.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF CLAIMS.

One of the courts of the United States, erected by act of con- gress. It consists of a chief justice and four associates, and holds one annual session. It Is located at Washington. Its jurisdiction extends to all claims against the United States arising out of any contract with the government or based on an act of congress or regulation of the executive, and all claims referred to it by either house of congress, as well as to claims for exoneration by a dis- bursing officer. Its judgments are, in certain cases, reviewable by the United States supreme -court It has no equity powers. Its decisions are reported and published.

This name Is also given, in some of the states, either to a special court or to the or- dinary county court sitting “as a court of claims,” having the special duty of auditing and ascertaining the claims against the coun- ty and expenses incurred by it, and providing for their payment by appropriations out of the county levy or annual tax. Meriweather v. Muhlenburg County Court, 120 U. S. 354, 7 Sup. Ct 563, 30 L. Ed. 653.

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**[Law] — Law**

**[Law: Tucker Act, 28 U.S.C. § 1491 — claims against the United States]**

The claims against the United States over which this court had jurisdiction — contracts with the government, acts of Congress — are heard under the Tucker Act, now by the Court of Federal Claims.

Why: Genuine: the entry defines the court's jurisdiction as claims against the United States on contracts and statutes; the Tucker Act is the statutory grant of that jurisdiction. Confident on the Act and section.

## COURT OF THE CLERK OF THE / MARKET.

An English court of Inferior ju- risdiction held in every fair or market for the punishment of misdemeanors committed therein, and the recognizance of weights and measures.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:35-36, KJV]**

Ye shall do no unrighteousness in judgment, in meteyard, in weight, or in measure. Just balances, just weights, a just ephah, and a just hin, shall ye have: I am the LORD your God, which brought you out of the land of Egypt.

Why: The weights-and-measures law — just balances, just weights — is the very subject matter of this court's jurisdiction over markets.

## COURT OF COMMISSIONERS OF / SEWERS.

The name of certain English courts created by commission under the great seal pursuant to the statute of sewers, (23 Hen. VIII. a 5.)

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF COMMON FLEAS.

The

English court of common pleas was one of the four superior courts at Westminster, and existed up to the passing of the judicature acts. It was also styled the “Common Bench.” It was one of the courts derived • from the breaking up of the aula regis, and had exclusive jurisdiction of all real actions and of communia placita, or common pleas, 1. e., between subject and subject. It was presided over by a chief justice with four puisne judges. Appeals lay anciently to the king’s bench, but afterwards to the exchequer chamber. See 3 Bl. Comm. 37, et seq.

In American law. The name sometimes givpn to a court of original and geueral Ju- risdiction for the trial of issues of fact and law according to the principles of the com- mon law. See Moore v. Barry, 30 S. C. 530, 9 S. E. 589, 4 L. R. A. 294.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF COMMON FLEAS FOR // THE CITY AND COUNTY OF NEW / YORK.

The oldest court In the state of New York. Its jurisdiction is unlimited as respects amount, but restricted to the city and county of New York as respects locality. It has also appellate jurisdiction of cases tried in the marine court and district courts of New York city. Rap. & L.

5e apparatus — Not carried into the 5th edition (1979).

## COURTS OF CONSCIENCE.

These were the same as courts of request, (</. t;.) This name is also frequently applied to the courts of equity or of chancery, not as a name but as a description. See Harper v. Clayton, 84 Md. 346, 35 Atl. 1083, 35 L. R.

A. 211, 57 Am. St Rep. 407. And see Con- science.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: The entry itself identifies these as courts of equity or chancery; honest reuse of the equity verse (also at COURT OF CHANCERY, COURT OF EQUITY, CONTRAVENING EQUITY).

## COURT OF CONVOCATION.

In Eng- lish ecclesiastical law. A court, or assembly.

comprising all the high officials of each prov- ince and representatives of the minor clergy. It is In the nnture of an ecclesiastical par- liament ; and, so far as its judicial functions extend, it has jurisdiction of cases of heresy, schism, and other purely ecclesiastical mat- ters. An appeal lies to the king in council.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF THE CORONER.

In Eng- lish law. A court of record, to inquire, when any one dies in prison, or comes to a violent or sudden death, by what manner he came to his end. 4 Steph. Comm. 323 ; 4 Bl. Comm. 274. See Coboneb. TINE. in English law. A species of pri- vate court which formerly appertained to the counties palatine of Lancaster and Durham.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF COUNTY COMMISSION.

ERS. There is in each county of Alabama a court of record, styled the “court of county commissioners,” composed of the judge of probate, as principal judge, and four com- missioners, who are elected ^t the times pre- scribed by law, and hold office for four years. Code Ala. 1886, $ 819.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF DELEGATES.

An English tribunal composed of delegates appointed by royal commission, and formerly the great court of appenl in all ecclesiastical causes. The jx) were of the court were, by 2 & 3 Wm. •

IV. c. 92, transferred to the privy council.

A commission of review was formerly grant- ed, in extraordinary cases, to revise a sen- tence of the court of delegates, when that court had apparently been led into material

error. Brown ; 3 Bl. Comm. G6. TER. A court of special jurisdiction, held before the chancellor of the duchy or his deputy, concerning all matters of equity re- lating to lands bolden of the king in right of the duchy of Lancaster. 3 BL Comm. 78.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF EQUITY.

A court which has jurisdiction in equity, which administers Justice and decides controversies in accord- ance with the rules, principles, and prece- dents of equity, and which follows the forms and procedure of chancery ; as distinguished from a court having the jurisdiction, rules, principles, and practice of the common law. Thomas v. Phillips, 4 Smedes & M. (Miss.) 423.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Honest reuse (also at COURT OF CHANCERY, COURTS OF CONSCIENCE, CONTRAVENING EQUITY): equity is justice tempered with mercy — the verse is its classic statement.

## COURT OF ERROR.

An expression ap- plied especially to the court of exchequer chamber and the house of lords, as taking cognizance of error brought. Mozley & Whit- ley. It is applied in some of the United States to the court of last resort in the state ; and in its most general sense denotes any court having power to review the decisions of lower courts on appeal, error, certiorari, or other process.

COURT OF GENERAL SESSIONS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COURT OF ERRORS AND APPEALS.

The court of last resort in the state of New Jersey is so named. Formerly, the same ti- tle was given to the highest court of appeal in New York.

—High court of errors wad appeals. The

court of last resort in the state of Mississippi.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF EXCHEQUER.

In Eng. list law. A very ancient court of record, set up by William the Conqueror as a part of the aula regia, and afterwards one of the four superior courts at Westminster. It was, however, inferior in rank to both the king's bench and the commolt pleas. It was pre- sided over by a chief baron and four puisne burons. It was originally the king's treas- ury, and was charged with keeping the king's accounts and collecting the royal revenues. But pleas

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between subject and subject were anciently heard there, until this was for- bidden by the Artieula auger CUartas, (1290,) after which its jurisdiction as a court only extended to revenue cases arising out of the non-payment or withholding of debts to the crown. But the privilege of suing and being sued in this court was extended to the king's accountants, and later, by the use of a con- venient fiction to the effect that the plain- tiff was the king’s debtor or accountant, the court was thrown open to all suitors in per- sonal actions. The exchequer had formerly both an equity side and a common-law side, but its equity jurisdiction was taken away by the stutute 5 Viet. c. 5, (1842,) and trans- ferred to the court of chancery. The judica- ture act (1873) transferred the business and jurisdiction of this court to the “Exchequer Division” of the "High Court of Justice.”

In Scotch law. A court which formerly had jurisdiction of matters of revenue, and a limited jurisdiction over cases between the crown and its vassals where no questions of title were involved.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF EXCHEQUER CHAMBER.

The name of a former English court of ap- peal, intermediate between the superior courts of common law and the house of lords. When sitting as a court of appeal from any one of the three superior courts of common law, it was composed of judges of the other two courts. 3 Bl. Comm. 56, 57; 3 Steph. Comm. 333, 35(1. By the judicature act (1873) the jurisdiction of this court is transferred to the court of appeal.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF GENERAL QUARTER / SESSIONS OF THE PEACE.

In Ameri- can law. A court of criminal jurisdiction In New Jersey.

In English law. A court of criminal ju- risdiction, in England, held in each county once in every quarter of u year, but in the county of Middlesex twice a month. 4 Steph. Comm. 317-320.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF GENERAL SESSIONS.

The name given in some of the. states (aa

289.

New York) to a court of general original Ju- risdiction In criminal cases.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF GREAT SESSIONS IN.

VALES. A court formerly lield in Wales; abolished by 11 Geo. IV. and 1 Wm. IV. c. 70, and the Welsh judicature incorporated with that of England. 3 Stepli. Comm. 317, note.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF GUESTLING.

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.An assembly of the members of the Court of Brotherhood (supra) together with other representatives of the corporate members of the Cinque Torts, invited to sit with the mayors of the seven principal towns. Cent. Diet

5e apparatus — Carried into the 5th edition (1979).

## COURT OF HIGH COMMISSION.

In

fkiglish law. An ecclesiastical court of very, formidable jurisdiction, for the vindication of the peace and dignity of the church, by re- forming, ordering, and correcting the eccle- siastical state and persons, and all manner of errors, heresies, schisms, abuses, offenses, contempts, and enormities. 3 Bl. Comm. 67. It was erected by St. 1 Ellz. c. 1, and abol- ished by 16 Car. I. c. iL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## COURT OF HONOR.

A court having Ju- risdiction to hear and redress injuries or af- fronts to a man’s honor or personal dignity, of a nature not cognizable by the ordinary courts of law, or encroachments upon his rights in respect to heraldry, coat-armor, right of precedence, and the like. It was one of the functions of the Court of Chivalry (g. v.) In England to sit and act as a court of honor. 3 Bl. Comm. 104. The name is also given In some European countries to a tri- bunal of army officers (more or less distinctly recognized by law as a "court”) convened for the purpose of inquiring into complaints af- fecting the honor of brother officers and pun- ishing derelictions from the code of honor and deciding on the causes and occasions for fight- ing duels, in which officers are concerned, and the manner of conducting them.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF HUSTINGS.

Ia English law. The county court of London, held be- fore the mayor, recorder, and sheriff, but of which the recorder is, In effect, the sole judge. No actions can be brought in this court that are merely personal. 3 Stepli. Comm. 449, note I.

Ia American law. A local court In some parts of the state of Virginia. Smith v. Commonwealth, 6 Grat. 690.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF INQUIRY.

In English law. A court sometimes appointed by the crown to ascertain whether it be proper to resort to extreme measures against a person charged before a court-martial.

Ia American law. A court constituted by authority of the articles of war. Invested with the power to examine Into the nature of any. transaction, accusation, of Imputation Bl.Law Dict.(2d Ed.)— 19

against any officer or soldier. The said court, shall consist of one or more officers, not ex-

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ceeding three, and a judge advocate, or other . suitable person, as a recorder, to reduce the proceedings and evidence to writing; all of whom shall be sworn to the performance of their duty. Rev. St. § 1342, arts. 115, 116 (U. S. Comp. St. 1901, pp. 970, 971.)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: courts of inquiry under the UCMJ — successor to the articles-of-war court the entry cites]**

The court of inquiry the entry describes under the articles of war (citing Rev. St. § 1342, arts. 115–116) survives in the Uniform Code of Military Justice, which provides for courts of inquiry to investigate matters of military concern.

Why: Genuine lineage: the entry defines the institution under the articles of war with statutory cites; the UCMJ is the successor code carrying the same institution. Kept in loose form; no invented article number.

## COURT OF JUSTICE SEAT.

In Eng- lish law. The principal of the forest courts.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF JUSTICIARY.

A Scotch court of general criminal jurisdiction of all offenses committed in any part of Scotlnnd, both to try causes and to review decisions of inferior criminal courts. It is composed of fire lords of session with the lord president or justice-clerk as president. It also has ap- pellate jurisdiction in civil causes Involving small amounts. An appeal lies to the house of lords.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF KING’S BENCH.

In Eng- lish law. The supreme court of common law In the kingdom, now merged in the high court of justice under the judicature act of- 1873, § 16.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF LAW.

In a wide sense, any duly constituted tribunal administering the laws of the state or nation ; In a narrower sense, a court proceeding according to the course of the common law and governed by its rules and principles, as contrasted with a “court of equity.”

5e apparatus — Carried into the 5th edition (1979).

## COURT OF EODEMANAGE.

An an- cient court of the Cinque Ports, having Ju- risdiction in maritime matters, and particu- larly over pilots (lodemen.) ARD. In English law. A court instituted for the trial, during the recess of parlia- ment, of peers indicted for treason or felony, or for misprision of either. This court is not a. permanent body, but is created in mod- ern times, when occasion requires, and for the time being, only ; and the lord high stew- ard, so constituted, with such of the tem- poral lords as may take the proper oath, and act, constitute the court.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF THE LORD HIGH STEW- / ARD OF THE UNIVERSITIES.

In Eng- lish law. A court constituted for the trial of scholars or privileged persons connected with the university at Oxford or Cambridge who are indicted for treason, felony, or may- hem.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF MAGISTRATES AND / FREEHOLDERS.

In American law. The name of a court formerly established in South Carolina for the trial of slaves and free persons of color for criminal offenses.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF MARSH ALSEA.

A court which has jurisdiction of all trespasses commltted within the verge of the king's court, where one of the parties was of the royal household; and of all debts and contracts, when hoth parties were of that establish- ment. It was abolished by 12 & 13 Viet. C. 101, § 13. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF NISI PRIUS.

In Amer- ican law. Though this term Is frequently used as a general designation of any court exercising general, original jurisdiction in civil cases, (being used Interchangeably with “trial-court,”) it belonged as a legal title only to a court which formerly existed In the city and county of Philadelphia, and which was presided over by one of the judges of the supreme court of Pennsylvania. This court was abolished by the constitution of 1874. See Coubts or Assize and Nisi Pbius.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF ORDINARY.

In some of the United States (e. g., Georgia) this name Is given to the probate or surrogate's court, or the court having the usual jurisdiction In respect to the proving of wills and the ad- ministration of decedents' estates. Veach v. Rice. 131 U. S. 293, 9 Sup. Ct 730, 33

L. Ed. 163.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF ORPHANS.

In English law. The court of the lord mayor and al- dermen of London, which has the care of those orphans whose parent died In London and was free of the city.

In Pennsylvania (and perhaps some oth- er states) the name “orphans’ court” Is ap- plied to that species of tribunal which Is elsewhere known as the “probate court” or “surrogate’s court."

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 1:27, KJV]**

Pure religion and undefiled before God and the Father is this, To visit the fatherless and widows in their affliction, and to keep himself unspotted from the world.

Why: The scriptural charge over the fatherless — visiting them in their affliction as pure religion — is the whole office of a court of orphans.

## COURT OF OYER AND TERMINER.

In English law. A court for the trial of cases of treason and felony. The commis- sioners of assise and nisi prius are judges selected by the king and appointed and au- thorized under the great seal, Including usually two of the judges at Westminster, and sent out twice a year into most of the counties of England, for the trial (with a Jury of the county) of causes then depend- ing at Westminster, both civil and criminal. They sit by virtue of several commissions, each of which, In reality, constitutes them a separate and distinct court. The commis- sion of oyer and terminer gives them author- ity for the trial of treasons and felonies ; that of general gaol delivery empowers them to try every prisoner then In gaol for what- ever offense; so that, altogether, they pos- sess full criminal jurisdiction.

In American law. This name Is gen- erally used (sometimes, with additions) as the title, or part of the title, of a state court of criminal Jurisdiction, or of the criminal branch of a court of general jurisdiction, be- ing commonly applied to such courts as may try felonies, or the higher grades of crime.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF OYER AND TERMINER / AND GENERAL JAIL DELIVERY.

In

American law. A court Of criminal juris- diction in the state of Pennsylvania.

It is held at the same time with the court of quarter sessions, as a general rule, and by the same judges. See Brlghtly’s Purd. Dig. Pa. pp. 26, 382, 1201. STER. This court bad jurisdiction of per- sonal actions arising within twelve miles of the palace at Whitehall. Abolished by 12 & 13 Viet. c. 101, 3 Steph. Comm. 317, note.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF PASSAGE.

An inferior court, possessing a very ancient Jurisdiction over causes of action arising within the bor- ough of Liverpool. It appears to have been also called the “Borough Court of Liver- pool.” It has the same Jurisdiction In ad- miralty matters as the Lancashire county court Rose. Adm. 75.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF PECULIARS.

A spiritual court In England, being a branch of, and annexed to, the Court of Arches. It has a jurisdiction over all those parishes dis- persed through the province of Canterbury, in the midst of other dioceses, which are exempt from the ordinary’s jurisdiction, and subject to

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the metropolitan only. All eccle- siastical causes arising within these peculiar or exempt Jurisdictions are originally cog- nizable by this court, from which an appeal lies to the Court of Arches. 3 Steph. Comm. 431; 4 Reeve, Eng. Law, 104.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF PIEPOUDRE.

The low- est (and most expeditious) of the courts of Justice known to the older law of England. It Is supposed to have been so called from the dusty feet of the suitors. It was a court of record incident to every fair and market, was held by the steward, and had Jurisdic- tion to administer Justice for all commer- cial Injuries and minor offenses done In that same fair or market, (not a preceding one.) An appeal lay to the courts at West- minster. This court long ago fell into dis- use. 3 Bl. Comm. 32.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF PLEAS.

A court of the county palatine of Durham, having a local common-law Jurisdiction. It was abolished by the judicature act, which transferred Its Jurisdiction to the high court. Jud. Act 1873, | 16; 3 Bl. Comm. 79. ANCE. A court established by statute 43 Eliz. c. 12, to determine In a summary way all causes between merchants, concerning policies of insurance. Crabb, Eng. Law, 503.

5e apparatus — Carried into the 5th edition (1979).

## COURTS OF PRINCIPALITY OF / WALES.

A species of private courts of a limited though extensive jurisdiction, which,

upon the thorough reduction of that princi- pality and the settling of its polity in the reign of Henry VIII., were erected all over the country. These courts, however-, have been abolished by 1 Wm. IV. c. 70; the principality being now divided into two cir- cuits, which the judges visit in the same manner as they do the circuits in England, for the purpose of disposing of those causes which are ready for trial. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF PRIVATE LAND CLAIMS.

A federal court created by act of Congress in 1891 (26 Stat. 854 [U. S. Comp. St 1901, p. 765]), to hear and determine claims by private parties to lands within the public domain, where such claims originated under Spanish or Mexican grants, and had not al- ready been confirmed by Congress or other- wise adjudicated. The existence and au- thority of this court were to cease and de- termine at the end of the year 1895.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF PROBATE.

Ia Engliab law. The name of a court established in 1857, under the probate act of that year, (20 A 21 Viet. c. 77,) to be held in London, to which court was transferred the testamen- tary Jurisdiction of the ecclesiastical courts. 2 Steph. Comm. 102. By the Judicature acts,

this court is merged in the high court of justice.

Ia American law. A court having ju- risdiction over the probate of wills, the grant of administration, and the supervi- sion of the management and settlement of the estates of decedents, including the col- lection of assets, the allowance of claims, and the distribution of the estate. In some states the probate courts also have juris- diction of the estates of minors, including the appointment of guardians and the set- tlement of their accounts, and of the es- tates ,of lunatics, habitual drunkards, and spendthrifts. And in some states these courts possess a limited Jurisdiction in civil and criminal cases. They are also called “orphans’ courts” and “surrogate's courts."

5e apparatus — Carried into the 5th edition (1979).

## COURT OF QUARTER SESSIONS OF / THE PEACE.

In American law. A court of criminal Jurisdiction in the state of Penn- sylvania, having power to try misdemean- ors, and -exercising certain functions of an administrative nature. There is one such court in each county of the state. Its ses- sions are, in general, held at the same time and by the same judges as the court of over and terminer and general jail delivery. See Brightly’s Purd. Dig. pp. 26, 383, f 35, p. 1198, I 1.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF QUEEN'S BENCH.

See

King’s Bench.'

5e apparatus — Carried into the 5th edition (1979).

## COURT OF RECORD.

See Court, su- pra.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF REGARD.

In English law. One of the forest courts, in England, held every third year, for the lawing or expedlta- tion of dogs, to prevent them from running after deer. It Is now obsolete. 3 Stepb. Comm. 440 ; 3 Bl. Comm. 71, 72.

5e apparatus — Carried into the 5th edition (1979).

## COURTS OF REQUEST.

Inferior courts, in England, having local jurisdic- tion in claims for small debts, established in various parts of the kingdom by special acts of parliament. They were abolished in 1846, and the modern county courts ( q . v .) took their place. 3 Steph. Comm. 283.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF SESSION.

The name of the highest court of civil jurisdiction in Scot- land. It was composed of fifteen judges, now of thirteen. It sits in two divisions. The lord president and three ordinary lords

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form the first division ; the lord Justice clerk and three other ordinary lords form the second division. There are five permanent lords ordinary attached equally to both di- visions; the last appointed of whom offici- ates on the Dills, i. e., petitions preferred to the court during the session, and performs the other duties of Junior lord ordinary. The chambers of the parliament house in which the first and second divisions hold their sittings are called the “inner house;" those in which the lords ordinary sit as single judges to hear motions and causes are collectively called the “outer house.” The nomination and appointment of the judges is in the crown. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF SESSIONS.

Courts of crim- inal jurisdiction existing in California. New Vork. and one or two other of the United States.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF STANNARIES.

In Eng- lish law. A court established in Devonshire and Cornwall, for the administration of Jus- tice among the miners and tinners, and that they may not be drawn away from their business to attend suits in distant courts. The stannary court is a court of record, with a special Jurisdiction. 3 Bl. Comm. 79.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF STAR CHAMBER.

This was an English court of very ancient origin, but new-modeled by St. 3 Hen. VII. c. 1, and 21 Hen. VIII. c, 20, consisting of divers lords, spiritual and temporal, being privy councillors, together with two judges of the courts of common law, without the Interven- tion of any jury. The jurisdiction extended legally over riots, perjury, misbehavior ot sheriffs, and other misdemeanors contrary to the lows of the land; yet It was after- wards stretched to the asserting of all proc- lamations and orders of state, to the vindi- cating of Illegal commissions and grants of monopolies ; holding for honorable that which it pleased, and for just that which it profited, and becoming both a court of law

to determine civil rights and a court of rev- enue to enrich the treasury. It was finally abolished by St. 10 Car. I. c. 10, to the gen- eral satisfaction of the whole nation. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. V, XIV — due process of law]**

The Star Chamber's descent — from a court of riots and perjury into an instrument that 'held for honorable that which it pleased, and for just that which it profited' — is the classic historical foil of due process: no person shall be deprived of liberty without due process of law.

Why: Genuine: the entry narrates the court's arbitrary turn and its abolition 'to the general satisfaction of the whole nation'; the due-process clauses are the constitutional answer to prerogative justice of exactly this...

## COURT OF THE STEWARD AND / MARSHAL.

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A high court, formerly held in England by the steward and marshal of the king’s household, having jurisdiction of all actions against the king's peace within the bounds of the household for twelve miles, which circuit was called the ‘‘verge.’’ Crabb, Eng. Law, 185. It had also jurisdiction of actions of debt and covenant, where both the parties were of the household. 2 Reeve, Eng. Law, 235. 247.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF THE STEWARD OF THE / KING’S HOUSEHOLD.

In English law. A court which had jurisdiction of all cases of treason, misprision of treason, murder, manslaughter, bloodshed, and other mali- cious striklngs whereby blood is shed, oc- curring in or within the limits of any of the palaces or houses of the king, or any other house where the royal person is abid- ing. It was created by statute 33 Hen. VIII. c. 12, but long since fell into disuse. 4 Bl. Comm. 276, 277, and notes.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF SURVEY.

A court for the hearing of appeals by owners or masters of ships, from orders for the detention of un- safe ships, made by the English hoard of trade, under the merchant shipping act, 1870, 5 6.

5e apparatus — Carried into the 5th edition (1979).

## COURT OF SWEINMOTE.

In old Eng- lish law. One of the forest courts, having a somewhat similar jurisdiction to that of the court of attachments, ( q . v .)

comprise the following: The senate of the

United States, sitting as a court of impeach- ment ; the supreme court ; the circuit courts ; the circuit courts of appeals; the district courts ; the supreme court nnd court of ap- peals of the District of Columbia ; the ter- ritorial courts ; the court of claims ; the court of private land claims: and the cus- toms court. See the several titles.

COURTS OF THE UNIVERSITIES of

Oxford and Cambridge have jurisdiction in all personal actions to which any member or servant of the respective university is a party, provided that the cause of action arose within the liberties of the university, and that the member or servant was resi- dent in the university when it arose, and when the action was brought. 3 Steph. Comm. 290; St. 25 & 26 Viet. c. 26, § 12, St. 19 A 20 Viet c. 17. Each university court also has a criminal jurisdiction in all of- fenses committed by its members. 4 Steph. Comm. 325.

5e apparatus — Not carried into the 5th edition (1979).

## COURT OF WARDS AND LIVERIES.

A court of record, established in England in the reign of Henry VIII. For the sur- vey and management of the valuable fruits of tenure, a court of record was created by St. 32 Hen. VIII. c. 46. called the "Court of the King’s Wards.” To this was annexed, by St. 33 Hen. VIII. c.

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22, the “Court of Liveries ;” so that it then became the “Court of Wards and Liveries." 4 Reeve, Eng. Law, 258. This court was not only for the management of “wards,” properly so called, but also of idiots and natural fools in the king's custody, and for licenses to be granted to the king’s widows to marry, and fines to be made for marrying without his license. Id. 259. It was abolished by St 12 Car.

II. c. 24. Crabb, Eng. Law, 468.

5e apparatus — Carried into the 5th edition (1979).

## COURTS OF WESTMINSTER HALL.

The superior courts, both of law and equity, were for centuries fixed at Westminster, an ancient palace of the monarchs of England. Formerly, all the superior courts were held before the king's capital justiciary of Eng- land, in the aula regus, or such of his palaces “wherein his royal person resided, and remov- ed with his household from one end of the kingdom to another. This was found to oc- casion great inconvenience to the suitors, to remedy which it was made an article of the great charter of liberties, both of King John and King Henry III., that “common pleas should no longer follow the king’s court, but be held In some certain place,” in consequence of which they have ever since been held (a few necessary removals in times of the plague excepted) in the palace of West- minster only. The courts of equity also sit at Westminster, nominally, during term time, although, actually, only during the first day of term, for they generally sit in courts provided for the purpose in, or in the neigh- borhood of, Lincoln’s Inn. Brown.

5e apparatus — Carried into the 5th edition (1979).

## COURT ROLLS.

The rolls of a manor, containing all acts relating thereto. While belonging to the lord of the manor, they are not in the nature of public books for the benefit of the tenant.

5e apparatus — Carried into the 5th edition (1979).

## COURTESY.

See Cuhtest.

5e apparatus — Carried into the 5th edition (1979).

## COUSIN.

Kindred in the fourth degree, being the issue tiuale or female) of the broth- er or sister of one’s father or mother.

Those who descend from the brother or sis- ter of the father of the person spoken of are called “paternal cousins ;” “maternal cousins” are those who are descended from the brothers or sisters of the mother. Cous- ins-german are first cousins. Sanderson v, Bayley, 4 Myl. & C. 59.

In English writs, commissions, nnd other for- mal instruments issued by the crown, the word signifies any peer of the degree of an earl. The appellation is ns aneient as the reign of Henry IV., who, being related or allied to every earl then in the kingdom, acknowledged that

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connect

tion in all his letters and public acts; from which the use has descended to his successors, though the reason has long ago failed. Mozlpy & Whitley.

—First cousins. Cousins-german; the chil- dren of one's uncle or aunt. Sanderson v. Bay- ley. 4 Mylne & C. 59.— Second cousins. Per- sons who are related to each other by descend- ing from the. same great-grandfather or great- grandmother. The children of one’s first cous- ins are his second cousins. These are some- times called “first cousins once removed.” Slade v. Fooks, 9 Sim. 387; Corporation of Bridgnorth v. Collins, 15 Sim. 541. — Quater cousin. Properly, a cousin in the fourth de- gree : bnt the term has come to express any remote degree of relationship, and even to bear an ironical signification in which it denotes a very trifling degree of intimacy and regard. Often corrupted into "cater” cousin.

COUSINAGE.. See Cosinaoe.

5e apparatus — Not carried into the 5th edition (1979).

## COUSTOM.

Custom ; duty ; toll ; tribute. 1 Bl. Comm. 314.

5e apparatus — Carried into the 5th edition (1979).

## COUSTOUMIER.

(Otherwise spelled ” Coustumlcr ” or “Coutumier.") In old French law. A collection of customs, un- written laws, and forms of procedure. Two such volumes are of especial importance In Juridical history, viz., the Grand Comiumicr tic Xormandie, and the Coutumier tie France or Grand Coutumier.

5e apparatus — Not carried into the 5th edition (1979).

## COUTHUTLAUGH.

A person who will- ingly and knowingly received an outlaw, and cherished or concealed him ; for which of- fense he underwent the same punishment as the outlaw himself. Bract. 1286; Spelman.

COU VENTURE, In French law, is the deposit ("margin") made by the client In the hands of the broker, either of a sum of mon- ey or of securities, in order to guaranty the broker for the payment of the securities •which he purchases for the client. Arg. Fr. Merc. Law, 555.

5e apparatus — Not carried into the 5th edition (1979).

## CO V ENABLE.

A French word signify- ing convenient or suitable; as covenably en- dowed. It is anciently written “convenable,” Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## COVENANT.

In practice. The name of a common-law form of action ex con- tractu, which lies for the recovery of dam- ages for breach of a covenant, or contract under seal. Stlckney v.

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Stlckney, 21 N.

H. ’68.

Ia the law of contracts. An agreement, convention, or promise of two or more par- ties, by deed in writing, signed, sealed, and delivered, by which either of the parties pledges himself to the other that something is either done or shall lie done, or stipulates for the truth of certain facts. Sabin v. Ham- ilton, 2 Ark. 490; Com. v. Robinson. 1 Watts (Pa.) 160; Kent v. Ediuondstou, 49

N. C- 529.

An, agreement between two or more parties, reduced to -writing and executed by a sealing and delivery thereof, whereby some of the parties named therein engage, or one of them engages, with the other, or others, or some of them, therein also named, that some act hath or hath not already been done, or for the performance or non-performance of some specified duty. De Bolle v. Insur- ance Co., 4 Whart. (Pa.) 71, 33 Am. Dec. 38.

Classification. Covenants may be classi- fied according to several distinct principles of division. According as one or other of these is adopted, they are:

Express or implied; the former being those which are created by the express words of the parties to the dped declaratory of their inten- tion, while implied covenants are those which are inferred by the law from certain words in a deed which imply (though they do not express) them. Express covenants are also called cove- nants “in deed,” as distinguished from cove- nants “in law.” McDonough v. Martin. 88 Ga. 675. 16 S. Bl 59, 18 L. It. A. 343; Conrad v. Morehead, 89 N. C. 31 : Garstang v. Daven- port, 90 Iowa, 359, 57 N. W. 876.

Dependent, concurrent, and independ- ent. Covenants are either dependent, concur- rent, or mutual and independent. The first de- pends on the prior performance of some act or condition, and, until the condition is performed, the other party is not liable to an action on his covenant. In the second, mutual acts are to be performed at the same time: and if one party is- ready, and offers to perform his part, and the other neglects or refuses to perform his, he who is ready and offers has fulfilled his en- gagement. and may maintain an action for the default of the other, though it is not certain that either is obliged to do the first act. ,The third -sort is where either party may recover damages from the other for the injuries he may have received by a breach of the covenants in his favor; and it is no excuse for the de- fendant to allege a breach of the covenants on the part of the plaintiff. Bailey v. White, 3 Ala. 330; Tompkins v. Elliot, 5 Wend. (N. Y.) 497 ; Gray v. Smith (C. C.) 76 Fed. 534.

Principal and auxiliary; the former being those which relate directly to the principal mat- ter of the contract entered into between the parties ; while auxiliary covenants are those which do not relate directly to the principal matter of contract between the, parties, but to something connected with it.

Inherent and collateral; the former being such as immediately affect the particular prop- erty. while the latter affect some property col- lateral thereto or some matter collateral to the grant or lease. A covenant inherent is one w-hieh is conversant about the land, and knit to the estate in the land ; as, that the thing de- mised shall be quietly enjoyed, shall bp kept

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in repair, or shall not be aliened. • A covenant col- lateral is one which is conversant about some collateral thing that doth nothing at all, or not so immediately, concern the thing granted : as to pay a sum of mopey in gross, etc. Shep. Touch. 161.

Joint or several. The former bind both or all the covenantors together; the latter bind each of them separately. A covenant may be both joint and several at the same time, as regards the covenantors ; but,' as regards the cove- nantees, they cannot be joint and several for one and the same cause, (5 Ooke. 19tf.) but must be either joint or several only. Covenants are usually joint or several according as the inter- ests of the covenantees are such ; but the words of the covenant, where they are unam- biguous. will decide, although, where they are ambiguous, the nature of the interests ns being •joint or several is left to decide. Brown. See

Capen v. Barrows, 1 Gray (Mass.) 379; In re Blingsby, 5 Coke, 18b.

General or specific. The former relate to land generally and place the covenantee in the position of a specialty creditor only ; the latter relate to particular lands and give the cove- nantee a lien thereon. Brown.

Executed or executory; the former being such as relate to an act already performed ; while the latter are those whose performance is to be future. Shep. Touch. 161.

Affirmative or negative) the fonner being those in which the party binds himself to the .existence of a present state of facts as repre- sented or to the future performance of some act; while the latter are those in which the cove- nantor obliges himself not to do or perform some act.

Declaratory or obligatory | the former be- ing those which serve to limit or direct uses; while the latter are those which are binding on the party himself. 1 Sid. 27 ; 1 Keb. 337.

Real and personal. A real covenant is one which binds the heirs of the covenantor and passes to assignees or purchasers ; a covenant the obligation of which is so connected with the realty that he who has the latter is either en- titled to the benefit of it or is liable to perform it: a covenant which has for its object some- thing annexed to, or inherent in, or connected with, land or other real property, and runs with the land, so that the grantee of the land is in- vested with it and may sue upon it for a breach happening in his time. 4 Kent, Comm. 470; 2 Bl. Comm. 304; Chapman' v. Holmes, 10 N.

J. Law, 20; Skinner v. Mitchell, 5 Kan. App. 36C, 48 Pac. 450; Oil Co. v. Hinton, 159 ln5. 398, 64 N. E. 224 ; Davis ▼. Lyman, 6 Conn. 249. In the old books, a covenant real is also de- fined to be a covenant by which a man binds himself to pass a thing real, as lands or tene- ments. Termes de la Ley; 3 Bl. Comm. 156; Shep. Touch. 161. A personal covenant, on the other hand, is one which, instead of being a charge upon real estate of the covenantor, only binds himself and his personal representatives in respect to assets. 4 Kent, Comm. 470; Car- ter v. Denman, 23 N. J. Law, 270: Hadley v. Bemero, 97 Mo. App. 314, 71 S. W. 451. The phrase may also mean a covenant which is per- sonal to the covenantor, that is, one which he most perform in person, and cannot procure another person to perform for him.

Transitive or intransitive; the former be- ing those personal covenants the duty of per-

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forming which passes over to the representa- tives of the covenantor; while the latter are those the duty of performing which is limited to the covenantee himself, and does not pass over to his representative. Bac. Abr. Cov.

Disjunctive covenants. Those which are for the performance of one or more of several things at the election of the covenantor or covenantee, as the case may be. Platt, Cov. 21.

Absolute or conditional. An absolute covenant is one which is uot qualified or limited by any condition.

The following compound and descriptive terms may also be noted;

Continuing covenant. One which indi- cates or necessarily implies the doing of stipu- lated acts successively or as often as the oc- casion may require ; as, a covenant to pay rent by installments, to keep the premises in repair or insured, to cultivate land, etc. Mc- Glynn v. Moore, 25 Cal. 395.

Full covenants. As this term is used in American law, it includes the following: The covenants for seisin, for right to convey, against incumbrances, for quiet enjoyment, sometimes for further assurance, and almost always of warranty, this last often taking the place of the

covenant for quiet enjoyment, and indeed in many states being the only covenant in practical use. Rawle, Cov. for Title, S 21.

Mutual covenants. A mutual covenant is one where either party may recover damages from the other for the injury he may have re- ceived from a breach of the covenants in his favor. Baiiey v. White, 3 Ala. 330.

Separate covenant. A several covenant ; one which binds the several covenantors each for himself, but not jointly.

Usual covenants. An agreement on the part of a seller of real property to give the usual covenants binds him to insert in the grant covenants of "seisin.” "quiet enjoyment,” “fur- ther assurance." “general warranty,” and “against incumbrances.” Civ. Code Cal. I 1733. See Wilson v. Wood, 17 N. J. Eq. 216, 88 Am. Dec. 231 ; Drake v. Barton. 18 Minn. 467 (Gil. 414). The mailt of the authorities appears to be that in a case where the agreement is silent as to the particular covenants to be inserted in the lease, and provides merely for the lease containing “usual covenants,” or, which is the same thing, in an open agreement without any reference to the covenants, and there are no special circumstances justifying the introduc- tion of other covenants, the following are the only ones which either party can insist upon, namely: Covenants by the lessee (1) to pay rent ; (2) to pay taxes, except such as are expressly payable by the landlord ; (3) to keep and de- liver up the premises in repair; and (4) to al- low the lessor to enter and view the state of repair ; and the usual qualified covenant by the lessor for quiet enjoyment by the lessee. 7 Ch. Div. 561.

Specific covenants. — Covenant against Incumbrances. A covenant that there are no incumbrances on the land conveyed ; a stipula- tion against all rights to or interests in the land which may subsist in third persons to the diminution of the value of the estate granted.

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Bank v. Parisette, 68 Ohio St. 450, 67 N. E. 896 ; Shearer v. Ranger, 22 Pick. (Mass.) 447 ; Sanford v. Wheelan, 12 Or. 301. 7 Pac. 324. —Covenant for farther assurance. An undertaking, in the form of a covenant, on the part of the vendor of real estate to do such further acts for the purpose of perfecting the purchaser's title as the latter may reasonably require. This covenant is deemed of great im- portance, since it relates both to the title of the vendor and to the instrument of conveyance to the vendee, and operates as well to secure the performance of all acts necessary for supplying any defect in the fonner as to remove all ob- jections to the sufficiency and security of the latter. Platt, Cov. : Rawle. Cov. |j| 98, 99. See Sugd. Vend. 500; Annstrong v. Darby. 26 Mo. 530.— -Covenant for quiet enjoyment. An assurance against the consequences of a de- fective title, and of any disturbances thereupon. Platt, Cov. 312; Rawle, Cov. 125. A covenant that the tenant or. grantee of an estate shall enjoy the possession of the premises in peace and without disturbance by hostile claimants. Poposkey v. Munkwitz, 68 Wis. 322, 32 N. W. 35, 60 Am. Rep. 858; Stewart v. Drake. 9 N.

J. Law, 141 ; Kane v. Mink, 64 Iowa, 84, 19

N. W. 852: Chestnut v. Tyson, 105 Ala. 149, 16 South. 723, 53 Am. St. Rep. 101 : Christy v. Bedell, 10 Kan. App. 435, 61 Pac. lOOo. —Covenamts for title. Covenants usually inserted in a conveyance of land, on the part of the grantor, and binding him for the complete- ness, security, and continuance of the title trans- ferred to the grantee. They comprise "cove- nants for seisin, for right to convey, against incumbrances, or quiet enjoyment, sometimes for further assurance, and almost always of war- ranty." Rawle. Cov. f 21. — Covenants in gross. Such as do not run with the land.— Covenant not to sue. A covenant by one who had a right of action at the time of making It against another person, by which he agrees not to sue to enforce such right of ac- tion. — Covenant of non-claim. A covenant sometimes employed, particularly in the New England states, and in deeds of extinguishment of ground rents in Pennsylvania, that neither the vendor, nor his heirs, nor any other person, etc., shall claim any title in the premises con- veyed. Rawle, Cov. $ 22. — Covenant of right to convey. An assurance by the covenantor that the grantor has sufficient capacity and title to convey the estate which he by his deed un- dertakes to convey. — Covenant of seisin. An assurance to the purchaser that the grantor has the very estate in quantity and quality which he purports to convey. 11 East, 641 ; Rawle, Cov. | 58. It is said that the covenant of seisin is not now in use in England, being embraced in that of a right to convey ; but it is used in several of the United States. 2 Washb. Real Prop. *648; Pecare v. Chouteau, 13 Mo. 527 ; Kincaid v. Brittain, 5 Sneed (Tenn.) 121 ; Backus v. McCoy, 3 Ohio, 221, 17 Am. Dec. 5®; De Long v. Sea Girt Co., 65 N. J. Law, 1, 47 Atl. 491 . — Covenant of warranty. An assurance by the grantor of an estate that the grantee shall enjoy the same without interrup- tion by virtue of paramount title. King v. Kil- bride, 58 Conn. 109, 19 Atl. 519; Kincaid v. Brittain, 5 Sneed (Tenn.) 124: King v. Kerr, 5 Ohio, 155, 22 Am, Dec. 777 ; Chapman v. Holmes, 10 N. .T. Law, 26. — Covenant run- ning with land. A covenant which goes with the land, as being annexed to the estate, and which cannot be separated from the land, and transferred without it. 4 Kent, Comm. 472, note. A covenant is said to run with

the land, when not only the original parties or their rep- resentatives. but each successive owner of the land, will be entitled to its benefit, or be liable (as the case may be) to its obligation. 1 Steph. Comm. 455. Or, in other words, it is so called when either tbe liability to perform it or the right to take advantage of it passes to the as- signee of the land. Tillotson v. Prichard, 60 Vt. 94, 14 Atl. 302. 6 Am. St. Rep. 95; Spen- cer’s Case, 3 Coke. 31 ; Gilmer v. Railway Co., 79 Ala. 572, 58 Am. Rep. 623: Conduitt v. Ross, 102 Ind. 166, 26 N. E. 198.— Covenant to convey. A covenant by which the cove- nantor agrees to convey to the covenantee a certain estate, under certain circumstances.— Covenant to stand seised. A conveyance adapted to the case where a person seised of land in possession, reversion, or vested remain- der. proposes to convey it to his jvife, child, or kinsman. In its terms it consists of a covenant by him, in consideration of his natural lore and affection, to -stand seised of tbe land to the use of the intended transferee. Before the stat- ute of uses this would merely have raised a use in favor of the covenantee ; but by that act this use is converted into the legal estate, and the covenant therefore operates as a conveyance of tbe land to the covenantee. It is now almost obsolete. 1 Steph. Comm. 532 ; Williams, Seis. 145; French v. French. 3 N. II. 261; Jack- son v. Swart, 20 Johns. (N. Y.) 85.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Spencer's Case, 5 Co. Rep. 16a (1583)]**

The entry's 'covenant running with land' — binding successive owners — is governed by Spencer's Case: a covenant runs only if it touches and concerns the land, so that the benefit or burden passes with the estate to assignees.

Why: Genuine: the entry defines the running covenant at length and cites Spencer's Case as its authority (given as '3 Coke, 31,' an edition variance); the touch-and-concern rule is the case's holding and the operative test...

**[Scripture] — Scripture**

**[Exodus 19:5, KJV]**

Now therefore, if ye will obey my voice indeed, and keep my covenant, then ye shall be a peculiar treasure unto me above all people: for all the earth is mine:

Why: The conditional covenant formula — pledged obedience and kept covenant answered with pledged treasure — scripture's own covenant structure.

## COVENANTEE.

The party to whom a covenant is made. Shep. Touch. 160.

5e apparatus — Not carried into the 5th edition (1979).

## COVENANTOR.

The party who makes a covenant. Shep. Touch. 160.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 7:9, KJV]**

Know therefore that the LORD thy God, he is God, the faithful God, which keepeth covenant and mercy with them that love him and keep his commandments to a thousand generations;

Why: God as the covenant-keeper to a thousand generations — the covenantor par excellence. deity_verbatim off:

Moses speaking about God in the third person, not the deity's own speech.

## COVENANTS PERFORMED.

In Penn- sylvania practice. This is the name of a plea to the action of covenant whereby the defendant, upon informal notice to the plain- tiff, may give anything In evidence which he might have pleaded. With the addition of the words “absque hoc" it amounts to a denial of the allegations of the declaration; and the further addition of “with leave,” etc., imports an equitable defense, arising out of special circumstances, which the de- fendant means to offer in evidence. Zents v. Legnard, 70 Pa. 192; Stewart v. Bedell, 79 Pa. 336; Turnpike Co. v. McCullough, 25 Pa. 303.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 76:11, KJV]**

Vow, and pay unto the LORD your God: let all that be round about him bring presents unto him that ought to be feared.

Why: The vow-and-pay rule — covenants made must be performed — the principle of the plea of covenants performed.

## COVENT.

A contraction, in the old books, of the word “convent”

I

5e apparatus — Carried into the 5th edition (1979).

## COVENTRY ACT.

The name given to* the statute 22 & 23 Car. II. c. 1, which pro- vided for the punishment of assaults with Intent to malm or disfigure a person. It was so named from its belug occasioned by an as- sault on Sir John Coventry in the street. 4 Bl. Comm. 207; State v. Cody, 18 Or. 506, 23 Pac. 891.

5e apparatus — Carried into the 5th edition (1979).

## COVER INTO.

The phrase “covered in- to the treasury,” as used in acts of congress and the practice of the United States treas- ury department, means that money has actu- ally been paid into the treasury in the regu- lar manner, as distinguished from merely depositing it with the treasurer. U. S. v. Johnston, 124 U. S. 236, 8 Sup. Ct 446, 31

L. Ed. 389.

5e apparatus — Carried into the 5th edition (1979).

## COVERT.

Covered, protected, sheltered- A pound covert is one that is close or cov- ered over, as distinguished from pound overt,

■ which is open overhead. Co. Litt 475; 3 Bl. Conim. 12. A feme covert is so called, as be- ing under the wing, protection, or cover of her husband. 1 Bl. Comm. 442.

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—Covert baron, or covert de baron. Un- der the protection of a husband ; married. 1 Bl. Comm. 442. La feme gue eat covert de baron, the woman which is covert of a husband. Litt. | 670.

5e apparatus — Not carried into the 5th edition (1979).

## COVERTURE.

The condition or state of a married woman. Sometimes used elliptic- ally to describe the legal disability arising from a state of coverture. Osborn v. Horine. 19 111. 124; Roberts v. Lund, 45 Vt. 86.'

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Married Women's Property Acts — abrogation of coverture disabilities]**

The coverture the entry defines — the married woman's common-law disability to contract, sue, or hold property in her own name — was abrogated by the Married Women's Property Acts, which gave wives separate property, contracting capacity, and standing to sue and be sued.

Why: Genuine: the entry defines coverture expressly as 'the legal disability arising from a state of coverture'; the Property Acts are the reform that removed exactly that disability. The definition and the reform are inse...

**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The one-flesh union underlying coverture's doctrine of the wife under the husband's cover and protection. Placed at COVERTURE; COVERT left bare as single placement, and COPULA annotated independently for the distinct...

## COVIN.

A secret conspiracy or agree- ment between two or more persons to injure or defraud another. Mix v. Muzzy, 28 Conn. 191; Anderson v. Oscarnp (Ind. App.) 35 N.

E. 707; Hyslop v. Clarke, 14 Johns. (N. Y.) 465.

COVntOUS. Deceitful ; fraudulent; hav- ing the nature of, or tainted by, covin.

5e apparatus — Not carried into the 5th edition (1979).

## COWARDICE.

Pusillanimity; fear ; misbehavior through fear in relation to some duty to be performed before an enemy. O'Brien, Ct. M. 142; Coll v. State, 62 Neb. 15, 86 N. W. 925.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 20:8, KJV]**

What man is there that is fearful and fainthearted? let him go and return unto his house, lest his brethren's heart faint as well as his heart.

Why: Scripture's own cowardice-discharge rule — the fearful soldier sent home lest his fear infect his brethren — the exact military concept of the entry.

**[Humanity] — Humanity / Fiction & Film**

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**[Stephen Crane, The Red Badge of Courage, 1895]**

Henry Fleming flees his first battle and spends the novel wrestling with the shame of it — battlefield cowardice in the entry's military sense ('misbehavior through fear in relation to some duty to be performed before an enemy') as the whole subject of the book. (paraphrase) (paraphrase)

Why: Genuine: the entry's military definition of cowardice is the novel's entire subject, not set dressing. Paraphrase marked; novel, author, year, and Henry's flight certain.

## CRAFT.

I. A general term, now com- monly applied to all kinds of sailing vessels, though formerly restricted to the smaller

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vessels. The Wenonah, 21 Grat. (Va.) 097 ; Reed v. Ingham,. 3 • El. & B. 898.

2. A trade or occupation of the sort re- quiring skill and training, particularly man- ual skill combined with a knowledge of the principles of the art; also the body of per- sons pursuing such a calling ; a guild. Gan- ahl v. Shore, 24 Ga. 23.

: 3. Guile, artful cunning, trickiness. Not a legal term in this sense, though often used in connection with such terms as “fraud" and “artifice.”,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## CRANAGE.

A liberty to use a crane for drawing up goods and w’ares of burden from ships and vessels, at any creek of the sea, or wharf, unto the land, and to make a profit of doing so. It also signifies the money paid and taken for the service. Tomlins.

5e apparatus — Carried into the 5th edition (1979).

## CRANK.

A term vulgarly applied to a person of eccentric, ill-regulated, and un- practical mental habits ; a person half-craz- ed : a monomaniac ; not necessarily equiva- lent to "insane person,” “lunatic,” or any other term descriptive of complete mental derangement, and not carrying any implica- tion of homicidal mania. Walker v. Tri- bune Co. (C. C.) 29 Fed. 827.

5e apparatus — Carried into the 5th edition (1979).

# G

## GRASSES.

Large; gross; excessive; ex- treme. Crassa ignorantia , gross ignorance. Fleta, lib. 5, c. 22, §1&

— Cruii negligently. Gross neglect ; ab- sence of ordinarv care and diligence. Hun v. Cary, 82 N. Y. 72, 37 Am. Rep. 340.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CRASTINO.

Lat On the morrow, the day after. The returnrday of writs ; because the first day of the term was always some saint’s day, and writs were returnable on the day after. 2 Reeve, Eng. Law. 50.

5e apparatus — Not carried into the 5th edition (1979).

## CRATES.

An iron gate before a prison. 1 Vent. 304.

5e apparatus — Not carried into the 5th edition (1979).

## CRAVE.

To ask or demand; as to crave oyer. See Oyeb.

5e apparatus — Carried into the 5th edition (1979).

## CRAVEN.

In old English law. A word of disgrace and obloquy, pronounced on either champion, in the ancient trial by bat- tle, proving recreant, «. e., yielding. Glanville calls it “infcstum ct inverecvndum verbum." His condemnation was amittere liberam leg- em, i. e., to become infamous, and not to be accounted M&er et legalia homo, being sup- Iiosed by the event to have been proved for- sworn, and not fit to be put upon a jury or admitted as a witness. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CREAMER.

A foreign merchant, but generally taken for one who has a stall in a fair or market. Blount.

5e apparatus — Carried into the 5th edition (1979).

## CREAMUS.

I -at. We create. One of

the words by which a corporation in England

- <?REUIT ■

was formerly created by the king. 1 Bl. Comm. 473.

CREaNCE- In French law. A claim; a debt; also belief, credit, faith.

5e apparatus — Not carried into the 5th edition (1979).

## CREANCER.

One who trusts or gives credit ; a creditor. Britt, ce. 28, 78.

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## CREANSOR.

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A creditor. Cowell.

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## CREATE.

To bring into being; to cause to exist; to produce; as, to create a trust in lands, to create a corporation. Edwards v. Bibb, 54 Ala. 481 ; McClellan v. McClellan, 05 Me. 500.

To create a charter or a corporation is to make one which never existed before, while to renew one is to give vitality to one which has been forfeited or has expired ; and to extend one is to give an existing charter more time than originally limited. Moers v. Reading. 21 Pa. 189; Railroad Co. v. Orton (C. C.) 32_I-'ed. 473; Indianapolis v. Xavin, 151 Iud. 139, 51 N.

E. 80, 41 L. R. A. 344.

. CREDENTIALS. In International law. The instruments which authorize and estab- lish a public minister in his character with the state or prince to whom they are address- ed. If the state or prince receive the min- ister, he can be received only in the quality attributed to him in his credentials. They are. as it were, his letter of attorney, his mandate patent, mandatum manifcatum , Vattel, llv. 4, c. 6, § 70. j

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CREDIBLE.

Worthy of belief; entitled to credit. See Competency.

— Credible person. One who is trustworthy and entitled to be believed; in law and legal proceedings, one who is entitled to have his oath or affidavit accepted as reliable, not only on account of his good reputation for veracity, but also on account of his intelligence, knowl- edge of the circumstances, and disinterested re- lation to the matter in question. IJunn v. State, 7 Tex. App. H05 ; Territory v. Learv. 8 X. M, 180, 43 Pac. 688 ; Peck v. Chambers, 44 W. Va. 270, 28 S. E. 700.— Credible witness. One who, being competent to gfve evidence, is worthy of belief. Peck v. Chambers, 44 W. Va. 270, 2S 8. E. 706; Savage v. Bulger (Ky.) 77 S.

W. 717 : Amory v. Fellowes. 5 Mass. 228 ; Ba- con v. Bacon, 17 Pick. (Mass.) 134; Robinson v. Savage, 124 111. 260, 15 X. E. 850.— Cred- ibility. Worthiness of belief; that quality in a witness which renders his evidence worthy of belief. After the competence of a witness is allowed, the consideration of his credibility arises, and not before. 3 Bl. Comm. sW9 \ 1

Burrows, 414, 417 ; Smith v. Jones, 08 Vt. 132. 34 Atl. 424. As to the distinction between competenry and credibility, see COMPETENCY. —Credibly informed. The statement in a pleading or affidavit that one is "credibly in- formed and verily believes” such and such facts, means that, having no direct personal knowl- edge of the matter in question, he has derived his information in regard to it from authentic sources or from the statements of persons who are not onlv “credible.” in the sense of being trustworthy', but also informed as to the part ticular matter or conversant with it.

CREDIT. 1. The ability of a business rnuu.to borrow money, or obtain goods on

lime, In consequence of the favorable opin- ion held by the community, or by the par- ticular lender, as to his solvency and relia- bility. People v. Wasservogle, 77 Cal. 173, 19. Pac. 270; Dry Dock Bank v. Trust Co., 3 X. Y. 356.

2. Time allowed to the buyer of goods by the seller, in which to make payment for them.

3. The correlative of a debt; that is, a

debt considered from the creditor’s stand- point, or that which is incoming or due to One. ■ ■

4. That which is due to a merchant, as distinguished from debit, that which is due by him.

5. That influence connected with certain social positions. 20 Toullier, n. 10.

Tbe credit of an individual is the trust re- posed in him by those who deal with him that he is of ability to meet his engagements; and he is trusted because through the tribunals of the country he may be made to pay. The credit of a government is founded on a belief of its ability to comply with its engagements, and a confidence in uts honor, that it will do that voluntarily which it cannot be compelled to do. Owen v. Branch Bank, 3 Ala. 258.

— : Sill o* credit. See Bill.— Letter of credit. An open or sealed letter, from a mer- chant in one place, directed to another, in an- other place or country, requiring him. if a per- son therein named, or the bearer of the letter, shall have occasion to buy commodities, or to want money to any particular or unlimited amount, either to procure the same or to pass his promise, bill, or bond for it, tbe writer of the letter undertaking to provide him the money for the goods, or to repay him by exchange, or to give him such satisfaction as he shall re- quire, either for himself, or the bearer of the letter. 3 Chit. Com. Law, 33G. A letter of credit is a written instrument, addressed by one person to anothe'r. requesting tbe latter to give credit to the person in whose favor it is drawn. Civ. Code Cal. I 2858. ' Mechanics’ Bank v. New York & N. H. R. Co., 13 N. Y. 630; Pol- lock v. Helm. 54 Miss. 5. 28 Am. Rep. 342; Lafargue v. Harrison, 70 Cal. 380, 9 Pac. 261, 59 Am. Rep. 410. .General and special. A general letter of credit is one addressed to any and all persons, without naming any one in particular, while a special lptter of credit is addressed to a particular individual, firm, or corporation bv name. Birckbead v. Brown. 5 Hill (N. Y.) 642- Civ. Code Mont. 1895. 8 3713.— Line of cred- it. See Line.— Mutual credits. In bank- rupt law. Credits which must from their na- ture. terminate 'in debts ; as where a debt is due from one party, and credit given by him to the other for a sum of money payable at a future day. and which will then become a debt; or where there is a debt on one side, and a delivery of property with directions to turn it into money on the other. 8 Taunt. 499 ; 2 Smith. Lead. Cas. 179. By this phrase, in the rule under which courts of equity allow set-off in cases of mutual credit, we are to understand a knowledge on both sides of an existing debt due to one party, and a credit by the other par- ty. founded on and trusting to such debt, ns a means of discharging it. King v. King 9

X. J. Kq. 44. Credits given by two persons mutually ; t. e.. each giving credit to tbe other. It *s.a more extensive phrase than “mutual debts. Thus, the sum credited by one may be due at onee. that by the other payable in fn- turo; yet tjie credits are mutual, though the

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transaction would not come within the meaning

of mutual debts." 1, Atk. 230 ; Atkinson v. Elliptt. 7 Term R. 378. — Personal credit. That credit which a person possesses as an in- dividual, and which is founded on the opinion entertained of his character pnd business stand- ee- \ '/t ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 14:25, KJV]**

A true witness delivereth souls: but a deceitful witness speaketh lies.

Why: The credible witness is the true witness — one who delivers souls rather than speaking lies.

## CREDIT.

Fr. Credit in the • English sense of the term, or niore particularly, the security for a loan or advancement.

— Credit fonoier. A company or corporation formed for the purpose of carrying out improve- ments, by means of loans and advances on real estate security.— CrSdit mobilier. A com- pany or association formed for carrying on a banking business, or for the construction of pub- lic works, building of railroads, operation of mines, or other such enterprises, by means of loans or advances on the security of personal property. Barrett v. Savings Inst., 64 X. J. Eq. 425, 54 Atl. 543.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 5 — letters of credit]**

The letter of credit the entry defines at length — the issuer's undertaking to honor drafts drawn under it — is governed by the UCC's letter-of-credit article, which treats the issuer's obligation as independent of the underlying contract.

Why: Genuine: the (parser-fused) CREDIT entry defines general and special letters of credit with cases; UCC Article 5 is the governing statute. Keyed under CREDIT though the text lacks its own headword in the JSON (flagged...

**[Law: 11 U.S.C. § 553 — setoff of mutual debts in bankruptcy]**

The entry's 'mutual credits' in bankrupt law — cross-demands between the bankrupt and a creditor — survive as the setoff right: mutual pre-petition debts may be set off against each other in bankruptcy.

Why: Genuine: the entry's mutual-credits paragraph describes the equitable setoff of cross-demands in bankruptcy; § 553 is the Code provision preserving that right. Confident on the section.

## CREDITOR.

A person to whom a debt Is owing by another person, called the “debt- or.’’ Mohr v. Elevator Co., 40 Minn. 343, 41 X. tV. 1074 ; Woolvertoh v. Taylor Co., 43 111. App. 424 ; Insurant , Co. v. Meeker,

N. J. Law, 300; Walsh v. Miller, 51 Ohio St 462, 38 N. E. 381. The foregoing is the strict legal sense of the term ; but in a wider sense It means one who has a legal right to demand and recover from another a sum of money on any account whatever, and hence may Include the owner of any right of action against another, whether arising on contract or for a tort u

penalty; or a forfeiture. Keith v. Illner, 63 Ark. 244,

S. W. 13; Bongard v. Block, 81 111. 186, 25 Am. Rep. 270; Chalmers v. Sheehy, 132 Cal. 459, 64 Pac. 709, fe4 Am. St Rep. 62; Plerstoff v. Jorges, 86 Wls. 128, 50- N. W 735, 39 Am. St Rep. 881. :

Classification. A creditor is called a "sim- ple contract creditor," a “specialty creditor,” a “bond creditor,” or otherwise, according to the nature of the obligation giving rise to the debt.

Other compound and descriptive terms. — Attaching creditor. One who has caused an attachment to be issued and levied on prop- erty of, his debtor.— Catholic creditor. In Scotch law, one whose debt is secured on all ot on several distinct parts of the debtor’s prop- erty. The contrasted term (designating one who is not so secured) is “secondary creditor.” — Certificate creditor. A creditor of a mu- nicipal corporation who receives a certificate of indebtedness for the amount of his claim, there being no funds on hand to pay him. Johnson v. New Orleans. 46 La. Ann. 714, 15 South. 100.— Confidential creditor. A term some- times applied to creditors of a failing debtor who furnished him with the means of obtaining credit to which bis real circumstances did" not en- title him, thus involving loss to other creditors not in his confidence. Gay v. Strickland, 112 Ala. 567, 20 South. 921. — Creditor at large. One who has not established his debt by the recov- ery of a judgment or has not otherwise secured a lien on. any of the debtor’s property. U. S. v. Ingate (C. C.) 48 Fed. 254: Wolcott v. Ash- enfelter. 5 X. M. 442. 23 Pae. 780, 8 L. R. A. 691 .— Domestic creditor. One who resides in the same state or country in which the debtor has his domicile or his property. — Execution creditor. One who. having recovered a judg- ment against the debtor for his debt or claim, has also caused art execution fo be issped there- on.— Foreign creditor. One who resides in a state or country foreign to that where the

debtor has hie domicile or bia property. — Gen- eral creditor. A creditor at large I supra), or one who bas no lien or security for' the payment of bis debt or claim. King v. Fraser, 23 8. 543 : Wolcott v. Ashenfelter, 5 N. M. 442,

Pac. 780, 8 L. R. A. 091.— Joint creditors. Persons jointly entitled to require satisfaction of the same debt or demand. — Judgment creditor. One who baa obtained a judgment against his debtor, under which be can enforce execution. King v. Fraser, 23 S. C. 548 : Baxter v. Moses, 77 Me. 465, 1 Atl. 350. 52 Am. Rep. 783; .Code Civ, Proc. N. Y. 1899, $ 3343.— Junior creditor. One whose claim or demand accrued at a date later tbsn that of a claim or demand held by another creditor, who is called correlfttively the “senior" creditor. — Lien creditor. See Lien.— Preferred creditor. See Pbefebbed.— Principal cred- itor. One whose claim or demand very great- ly exceeds the claims of all other creditors in amount is sometimes so called. See In re Sul- livan’s Estate, 25 Wash. 430, 05 Pac. 793.— Secured creditor. 8ee Secured. — Subse- quent creditor. One whose claim or demand accrued or came into existence after a given fact or transaction, such as the recording of a deed or mortgage or the execution of a volun- tary conveyance. McGhee v. WellR. 57 8. C. 280. 35 S. E. 529, 76 Am. St. Rep. 567 ; Evans v. Lewis, 30 Ohio St. 14.— Warrant creditor. A

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creditor of a municipal corporation to whom is given a municipal warrant for the amount of his claim, because there are no funds in hand to pay it. Johnson v. New Orleans, 46 Leu Ann. 714, 15 South. 100.

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**[Law] — Law**

**[Maxim: Creditores — Dig. 50.16.11]**

Creditores appellatione non ii tantum accipiuntur qui pecuniam crediderunt, sed omnes quibus ex qualibet causa debetur: under 'creditors' are included not only money-lenders but all to whom, from any cause, a debt is owing.

Why: Genuine: the entry quotes this Digest maxim at the close of the CREDITOR entry; the note renders it. The maxim states the wide sense of 'creditor' the entry itself adopts ('one who has a legal right to demand... on an...

**[Law: UCC Article 9 — secured transactions; priority among creditors]**

The entry's taxonomy — lien creditor, secured creditor, judgment creditor, general creditor — takes its operative meaning from the law of secured transactions: Article 9 governs security interests in personal property and the priority contests among these classes.

Why: Genuine: the entry classifies creditors by lien and security; Article 9 is the statute that gives those classifications their priority consequences. Illuminates the taxonomy rather than renaming it. Confident on the a...

**[Scripture] — Scripture**

**[Psalm 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: The borrower-creditor moral frame — the wicked borrows and pays not again, the righteous lends and gives.

## CREDITORS’ BOX.

In English prac- tice. A bill In equity, filed by one or more creditors, for an account of the assets of a decedent, and a legal settlement and dis- tribution of his estate among themselves and such other creditors as may come in under the decree.

In American practice. A proceeding to enforce the security of a judgment creditor against the property or Interests of his debt- or. This action proceeds upon the theory that the judgment Is in the nature of a lien, such as may be enforced in equity. Hudson v. Wood (C. C.) 119 Fed. 775 ; Fink v. Pat- terson (C. C.) 21 Fed. 602; Gould v. Tor- rance, 19 How. Prac. (N. Y.) 560; McCart- ney v. Bostwick, 32 N. Y. 57.

A creditors’ bill, strictly. Is a bill by which a creditor seeks to satisfy his debt out of some equitable estate of the defend- ant, which Is not liable to levy and sale under an execution at law. But there Is another sort of a creditors’ bill, very nearly allied to the former, by means of which a party seeks to remove a fraudulent convey- ance out of the way of his execution. But a naked bill to set aside a fraudulent deed, which seeks no discovery of any property, chose in action, or other thing alleged to belong to the defendant, and which ought to be subjected to the payment of the judgment, is not a creditors’ bill. Newman v. Willetts, 52 111. 98.

Creditomm appellations non hi tan- tnm accipiuntur qui pecuniam oredider- unt. sod o nines qulbui ex qualibet causa debetur. Under the head of “creditors" are Included, not alone those who have lent money, but all to whom from any cause a debt is owing. Dig. 50, 16,

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11.

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## CJREDITRIX.

A female creditor.

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## CREEK.

In maritime law. 8uch little inlets of the sea, whether within the precinct or extent of a port or without, as are narrow passages, and have shore on either side of them. Call. Sew. 56.

A small stream less than a river. Baker v. City of Boston, 12 Pick. 184, 22 Am. Dec. 421.

The term Imports a recess, cove, bay, or Inlet In the shore of a river, and not a sepa- rate or independent stream; though it Is sometimes used in the latter meanlug. Schermerhom v. Railroad Co., 38 N. Y. 103.

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## CREMENTUM  COMTTAT6S.

The In- crease of a county. The sheriffs of counties anciently answered In their accounts for the Improvement of the king’s rents, above the visconticl rents, under this title.

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## CREPARE  OCULTJM.

In Saxon law. To put out an eye; which had a pecuniary punishment of fifty shillings annexed to It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## CREPUSGUL1TM.

Twilight. In the law of burglary, this term means the presence of sufficient light to discern the face of a man ; such light as exists immediately before the rising of the sun or directly after Its setting.

Creseemte malitiA eresoere debet et poena, 2 Inst. 479. Vice Increasing, pun- ishment ought also to Increase.

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**[Law] — Law**

**[Law: common-law burglary — breaking and entering a dwelling at nighttime]**

The twilight line the entry draws — light sufficient to discern a face — served the common-law requirement that burglary be a nighttime breaking and entering of a dwelling; most modern statutes punish burglary by day or night alike.

Why: Genuine: the entry defines crepusculum expressly 'in the law of burglary' as the twilight test; the nighttime element is the doctrine the defined term served. The note gives the operative context, kept in loose form. [re-homed from 'CREPUSCULUM' to 'CREPUSGUL1TM' (OCR headword / parser-merge artifact)]

**[Maxim: Crescente malitia crescere debet et poena]**

Crescente malitia crescere debet et poena: vice increasing, punishment ought also to increase — the scaling principle that graver wrongdoing merits graver punishment.

Why: Genuine maxim, printed in the dictionary's text within this entry (citing 2 Inst. 479) though belonging conceptually to sentencing; the reasoning notes its printed location honestly, as with the Corruptio optimi maxim… [re-homed from 'CREPUSCULUM' to 'CREPUSGUL1TM' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[John 3:19, KJV]**

And this is the condemnation, that light is come into the world, and men loved darkness rather than light, because their deeds were evil.

Why: Borderline, kept with reasoning explicit: burglary's nighttime element rests on darkness covering evil deeds; the verse states exactly that moral logic — men loved darkness rather than light because their deeds were e…

### CREST.

A term used In heraldry ; it sig- nifies the devices set over a coat of arms.

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### CRETINISM.

In medical jurisprudence. A form of imperfect or arrested mental de- velopment, which may amount to idiocy, with physical degeneracy or deformity or lack of development ; endemic In Switzerland and some other parts of Europe, but the term is applied to similar states occurring else- where.

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## G

### GRETINU8.

In old records. A sudden stream or torrent; a rising or inundation.

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## C

### CRETIO.

Lat. In the civil law. A cer- tain number of days allowed an heir to de- liberate whether he would take the inherit- ance or not. Calvin.

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### CREW.

The aggregate of seamen who man a ship or vessel, including the master and officers ; or It may mean the ship's com- pany, exclusive of the master, or exclusive of the master and all other officers. See U.

S. v. Winn, 3 Sumn. 209, 28 Fed. Cas. 733; Mlllaudon v. Martin, 6 Rob. (La.) 540; U. 8. v.

Huff (C. C.) 13 Fed. 030.

—Crew list. In maritime law. A list of the crew of a vessel ; one of a ship’s papers. This instrument is required by act of congress, and

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sometimes by treaties. Rev. St. U. S. If 4374, 4375 (U. S. Comp. St. 1001, p. 2980). It is necessary for the protection of the crews of every vessel, in the course of the voyage, during a war abroad. Jac. Sea Laws, 66, 69, note.

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## CRUSH.

An officer of a court, who makes proclamations. His principal duties are to announce the opening of the court and its adjournment and the fact that certain spe- cial matters are about to be transacted, to announce the admission of persons to the bar, to call the names of Jurors, witnesses, and parties, to announce that a witness has been sworn, to proclaim silence when so directed, and generally to make such proclamations of a public nature as the Judges order.

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## CRUSZ LA PEEZ.

Rehearse the con- cord, or peace. A phrase used in the ancient proceedings for levying fines. It was the form of words by which the Justice before • whom the parties appeared directed the serJeant or countor in attendance to recite or read aloud the concord or agreement between the parties, as to the lands intended to be conveyed. 2 Reeve, Eng. Law, 224, 225.

5e apparatus — Not carried into the 5th edition (1979).

## CRXM.

CON. An abbreviation for “crim- inal conversation,’’ of very frequent use, de- noting adultery. Gibson v. Cincinnati En- quirer, 10 Fed. Cas. 311.

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## CRIME.

A crime is an act committed or omitted, in violation of a public law, either forbidding or commanding it ; a breach or violation of some public right or duty due to a whole community, considered as a com- munity in its social aggregate capacity, as distinguished from a civil injury. Wilkins v. U. S., 96 Fed. 837, 37 C. C. A. 588 ; Pound- er v. Ashe. 36 Neb. 564, 54 N. W. 847 ; State v. Bishop, 7 Conn. 185; In re Bergin, 31 Wls. 386; State v. Brazier, 37 Ohio St. 78; Peo- ple v. Williams, 24 Mich. 163, 9 Am. Rep. 119; In re Clark, 9 Wend. (N. Y.) 212. “Crime” and “misdemeanor,” proi>erly speak- ing, are synonymous terms; though in com- mon usage “crime” Is made to denote such offenses as are of a deeper and more atro- cious dye. 4 Bl. Comm. 5.

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Crimes are those wrongs which the gov- ernment notices as injurious to the public, and punishes in what is called a “criminal proceeding,” in its own name. 1 Bish. Crim. Law, | 43.

A crime may be defined to be any act done in violation of those duties which an indi- vidual owes to the community, and for the breach of which the law has provided that Mie offender shall mnke satisfaction to the public. Bell.

A crime or public offense is an act commit- ted or omitted in violation of a law forbid- ding or commanding it, and to which is an- nexed, upon conviction, either of the follow- ing punishments: (1) Death; (2) imprisonment; (3) fine; (4) removal from office; or (5) disqualification to hold and enjoy any

office of honor, trust, or profit in this state. Pen. Code Cal. | 15.

A crime or misdemeanor shall consist in a violation of a public law, in the commission of which there shall be a union or Joint oper- ation of act and Intention, or criminal negli- gence. Code Ga. 18S2, § 4292.

Synonyms. According to Blackstone,' the word “crime” denotes such offenses as are of a deeper and more atrocious dye, while smaller faults and omissions of less consequence are called “misdemeanors.” But the better use ap- pears to be to make crime a term of broad and general import, including both felonies and misdemeanors, and hence covering all infrac- tions of the criminal law. In this sense it is not a technical phrase, strictly speaking, (as “fel- ony” and “misdemeanor” are,) but a convenient general term. In this sense, also, “offense” or "public offense” should be used as synonymous with it.

The distinction between a orime and a tort or civil injury is that the former is a breach and1 violation of the public right and of duties due to the whole community considered as such, and in its social and aggregate capacity: whereas the latter is an infringement or privation of the civil rights of individuals merely. Brown.

A crime, as opposed to a civil injury, is the- violation of a right, considered in reference t*> the .evil tendency of such violation, as regards the community at large. 4 Steph. Comm. 4.

Varieties of oximes.— Capital orime.

One for which the punishment of death is pre- scribed and inflicted. Walker v. State, 28 Tex. Anp. 503. 13 S. W. 860: Ex parte Dusenberry. 97 Mo. 504. 11 S. W. 217.— Common-law crimes. Such crimes as are punishable by the force of the common law, as distinguished from crimes created by statute. Wilkins v. U. S.. 36 Fed. 837. 37 C. C. A. 588; In re Greene (C. C.) 52 Fed. 111. These decisions (and many others) hold that there are no common- law crimes against the United States.— Con- structive orime. See Constructive.— Con- tinuous orime. One consisting of a contin- uous series of acts, which endures after the period of consummation, as. the offense of car- rying concealed weapons. In the case of in- stantaneous crimes, the statute of limitations begins to run with the consummation, while in the case of continuous crimes it only begins with the cessation of the criminal conduct or act. U. S. v. Owen (D. C.) 32 Fed. .537.— Crime against nature. The offense of buggery or sodomy. State v. Vicknair, 52 La. Ann. 1921. 28 South. 273 : Ausman v. Veal. 10 Ind. 355. 71 Am. Dec. 331 : People v. Williams. 59 Cal. 397.— High. crimes. High crimes . and mis-

demeanors are such immoral and unlawful acts as are nearly allied and equal in guilt to felony, yet, owing to some technical circumstance, do not fall within the definition of “felony.”' State v. Knapp, 6 Conn. 417, 16 Am. Dec. 68.— In- famous crime. A crime which entails in- famy upon one who has committed it. Butler v. Wentworth. 84 Me. 2.5, 24 At!. 456, 17 L.

R. A. 764. The term “infamous” — i. e., without fame or good report— was applied at common law to certain crimes, upon the conviction of which a person became incompetent to testify as a witness, upon the theory that a person would not commit bo heinous a crime unless he was so depraved as to be unworthy of credit. These crimes are treason, felony, and the crim- en fain. Abbott. A crime punishable bv im- prisonment in the state prison or penitentiary, with or without hard labor. iB an infamous crime, within the provision of the fifth amend- ment of the constitution that "no person shall be held to answer for a capital or otherwise infamous crime unless on a presentment or in- dictment of a grand jury.” Mackin v. U. S„ 117 U. 8. 348, 6 Sup. Ct. 777, 28 L. Ed.. 909.

“Infamous,” as used in the fifth amendment to the United States constitution, in reference to crimes, includes those only of the class called “ crimen falxi," which both involve the charge of falsehood, and may also injuriously affect the public administration of justice by introducing falsehood and fraud. U. S. v. Rloek, 15 N. B.

II. 325. Fed. Pas. No. 14,009. By the Revised Statutes of New York the term “infamous crime,” when used in any statute, is directed to be construed as including every offense pun-, isliable with death or by imprisonment in a state-prison, and no other. 2 Itev. St. <p. 702. $ 31,) p. 587. g 32.— Quasi crimes. This term embraces all offenses not crimes or misdemean- ors, but that are in the nature of crimes, — a class of offenses against the public which have not been declared crimes, but wrongs against the general or local public which it is proper should be repressed or punished by forfeitures and penalties. This would embrace all gut tarn actions and forfeitures imposed for the neglect or violation of a public duty. A guazi crime would not embrace an indictable offense, what- ever might be its grade, but simply forfeitures for a wrong done to the public, whether volun- tary or involuntary, where a penalty is given, whether recoverable by criminal or civil pro- cess. Wiggins v. Chicago, 08 111. 375. — Statu- tory crime*. Those created by statutes, as distinguished from such as are known to, or cognizable by, the common law.

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**[Law] — Law**

**[United States v. Hudson & Goodwin, 11 U.S. (7 Cranch) 32 (1812)]**

The entry notes that 'there are no common-law crimes against the United States' — the rule that federal courts have no common-law criminal jurisdiction; federal crimes must be created by statute.

Why: Genuine: the entry states the rule with supporting cases; Hudson & Goodwin is its landmark Supreme Court statement. Confident on the citation.

**[Law: U.S. Const. amend. V — grand jury indictment for infamous crimes]**

The entry's 'infamous crime' discussion states the Fifth Amendment rule: no person shall be held to answer for a capital or otherwise infamous crime except on presentment or indictment of a grand

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jury.

Why: Genuine: the entry quotes the Fifth Amendment language and discusses infamous crime at length (citing Mackin v. U.S.); the footnote gives the constitutional rule the discussion expounds. Confident.

**[Maxim: Actus reus non facit reum nisi mens sit rea]**

The entry's Georgia definition — crime as 'a union or joint operation of act and intention' — is the classical requirement of actus reus joined with mens rea: the act alone does not make one guilty unless the mind is guilty.

Why: Genuine: the entry defines crime to require the joint operation of act and intention (or criminal negligence); the maxim is the classical statement of that union. Nothing imported beyond the entry's own definition.

**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, Crime and Punishment, 1866]**

Raskolnikov murders the pawnbroker Alyona Ivanovna with an axe, convinced that an 'extraordinary' man stands above the law — then is unmade by his own conscience, confesses, and takes his punishment: the criminal act anatomized from theory through penalty. (paraphrase) (paraphrase)

Why: Genuine: the novel literally titled for the entry is the great literary anatomy of crime — act, intention, conscience, punishment. Paraphrase marked; details certain from the novel.

**[Maxim: Nullum crimen, nulla poena sine lege]**

Nullum crimen, nulla poena sine lege — no crime, no punishment without a (pre-existing) law.

Why: Classical maxim that is the spine of the entry: crime is defined throughout as violation of a public law, which presupposes the law pre-exists the act.

## CRIMEN.

Lat. Crime. Also an accu- sation or charge of crime.

—Crimen fnrtl. The crime or offense of theft. — Crimen Incendll. The crime of burn- ing, which included not only the modern crime of arson, but also the burning of a man. a beast, or other chattel. Britt, c. 9; Crabb, Eng. Law. 308.— Crimen Innomlnatum. The nameless crime; the crime against nature; sodomy or buggery.— Crimen raptns. The crime of rape.— Crimen roberise. The of- fense of robbery. — Flagrans crimen; Locus crimlnla; Particeps criminis. See those titles.

5e apparatus — Not carried into the 5th edition (1979).

## CRIMEN FALSI.

In the civil law.

The crime of falsifying; which might be committed either by writing, as by the for- gery of a will or ■ other instrument ; by words, as by bearing false witness, or per- jury ; and by acts, As by counterfeiting or adulterating the public money, dealing with false weights and measures, counterfeiting seals, and other fraudulent and deceitful practices. Dig. 48, 10; Halllfax, Civil Law, b. 3, c. 12, nil. 5(5-59.

In Scotch law. It has been defined: “A fraudulent imitation or suppression of truth, to the prejudice of another.” Ersk. Inst. 4, 4, (50.

At common law. Any crime which may injuriously affect the administration of jus- tice, by the introduction of falsehood and fraud. 1 Greenl. Ev. § 373.

In modern law. This phrnse is not used ns a designation of any specific crime, hut as a

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general designation of a class of of- fenses. including all such ns Involve deceit or falsification; e. y., forgery, counterfeit- ing. Using false weights or measures, per- jury. etc.

Includes forgery, perjury, subornation of perjury, and offenses affecting the public administration of justice. Matzeul.augh v- People, 194 111. 108, 62 N. E. 546, 88 Am. St. Rep. 134; Little v. Gibson, 39 N. II. 510; State v. Randolph, 24 Conn. 365; Webb v. State, 29 Ohio St. 358; Johnston v. Riley, 13 Ga. 97.

Crimen falsi dleltnr, ram qnls illicit- ns, cni non fnerit ad Msec data anotorit- aa, do sigillo regie, rapto vel invento, brevia, cartaave oonsignaverit. Fleta, lib. 1, c. 23. The crime of forgery is when any one illicitly, to whom power has not been given for such purposes, has signed writs or charters with the king's seal, either stolen or found.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 609(a)(2) — crimen falsi admissible to attack credibility]**

The crimen falsi the entry defines — forgery, perjury, counterfeiting, false weights, and other deceits — is the class of crimes of dishonesty or false statement that may be used to impeach a witness's credibility.

Why: Genuine: the entry defines the class (including perjury and forgery by name) and notes its common-law use against witness competency; Rule 609(a)(2) is the modern evidentiary form of that use. Confident on the rule.

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: The entry names false witness and perjury expressly among the crimen falsi; the commandment is their direct root.

## CRIMEN LIES IE MAJESTATIS.

In

criminal law. The crime of lese-majcHty, or injuring majesty or royalty; high treasou. The term was used by the older English law- writers to denote any crime affecting the- king's person or dignity.

It is borrowed from the civil law. In which it signified the undertaking of any- enter- prise against the emperor or the republic, Inst. 4, 18, 3.

Crimen laesae majestatis omnia alia crimina excedit quoad poenam. 3 Inst, 210. The crime of treason exceeds all other crimes lu its punishment.

Crimen omnia ex ae natavitiat. Crime vitiates everything which springs from it. Henry v. Bank of Snlina, 5 Hill (N. Y.) 523, 531.

Crimen trabit personam. The crime carries the person, (i. e., the commission of a crime gives the courts of the place where it is committed Jurisdiction over the jierson of the offender.) People v. Adams, 3 1 >eul0 (N. Y.) 190, 210, 45 Am. Dec. 468.

Crimina morte extinguuntur. Crimes are extinguished by death.

CRIMINAL, n. One who has committed a criminal offense ; one who has been legally convicted of a crime; one adjudged guilty of crime. Molineux v. Collins. 177 N. Y. 3a5. 69 N.

E. 727, 65 L. It. A. 104.

CRIMINAL, a <lj. That which pertains to or is connected with the law of crimes, or the administration of penal justice, or which relates to or lias the character of crime. Charleston v. Beller, 45 W. Va. 44, 30 S. E. 152 ; State v. Bnrten, 113 N. C. 655, 18 S.

E. 657.

—Criminal act. A term which is equivalent to crime ; or is sometimes used with a slight softening or glossing of the meaning, or as im- portiug a possible question of the legal guilt of the deed. — Criminal action. The proceed- ing b.v which a party charged with a public offense is accused and hrought to trial and pun- ishment is known as a “criminal action.” Pen.

Code Cal. S 683. A criminal action is (1) an action prosecuted by the state as a party, against a person charged with a public offense, for the punishment thereof; |2) an action prose- cuted by the state, at the instance of an individ- ual. to prevent an apprehended crime, against his person or property. Code X. C. 1-883. $ 1211. State v. Railroad Co. (C. CM 37 Fed. 497. 3 L. It. A. 554: Ames v. Kansas, 111 U. S. 4-19. 4 Sup. Ct. 437, 28 L. Ed. 482 ; State v. Costello, 61 Conn. 497. 23 Atl. 8(18— Criminal case. An action, suit, or cause instituted to punish an infraction of the criminal laws. State v. Smalls. 11 S. C. 279; Adams v. Ashbv. 2 Bibb. (Ky.) 97 ; U. S. v. Three Tons of Coal, 28 Fed. Cas. 149; People v. Iron Co.. 201 111. 230. 00 N. E. 349.— Criminal charge. An accusation of crime, formulated in a written, complaint, information, or indictment, and tak- ing shape in a prosecution. U. S. v. Patterson, 150 U. S. 65. 14 Sup. Ct. 20. 37 L. Ed. 909 ; Eason v. State, 11 Ark. 482.— Criminal con- versation. Adultery, considered in its aspect of a civil injury to the husband entitling him to damages ; the tort of debauching or seducing of a wife. Often abbreviated to crim. con. — Criminal intent. The intent to commit a crime ; malice, as evidenced by a criminal act; an intent to deprive or defraud the true owner of his property. People v. Moore. 3 X. Y. Or.

R. 458.— Criminal law. That branch or di- vision of law which treats of crimes and their punishments. In the plural — “criminal laws” —the term may denote the laws which define and prohibit the various species of crimes and estab- lish their nunishments. U. S. v. Reisinger. 128 r. S. 398. 9 Sup. Ct. 99, 32 L. Ed. 480.— Criminal law amendment act. This act was passed in 1871, (34 & 35 Viet. c. 32.) to prevent and punisb any violence, threats, or molestation, on the part either of master or workmen, in the various relations arising be- tween them. 4 Steph. Comm. 241. — Criminal law consolidation acta. The statutes 24 & 25 Viet. cc. 94—100. passed in 1.861. for the con- solidation of the criminal law of England and Ireland. 4 Steph. Comm. 297. These impor- tant statutes amount to a codification of the modern criminal law of England.— Criminal letters. In Scotch Jaw. A process used as the commencement or a criminal proceeding, in the nature of a summons issued by the lord ad- vocate or his deputy. It resembles a criminal information at common law.— Criminal pro- ceeding. One instituted and conducted for the pnnrose either of preventing the commis- sion of crime, or for fixing the guilt of a crime already committed and punisliin"- the

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offender: as distinguished from a “civil” proceeding, which is for the redress of a private injury, r. S. v. TTnen (P. C.l 118 Fed. 442: Sev- ier r. Washington County Justices. Peck (Tenn.) .334: People v. Ontario County. 4

Penio (N. Y.l 200.— Criminal procedure. The method txdnted out by law for the amirehen- sion. trial, or prosecution, and fixing the pun- ishment. of those persons who have broken or violated, or are supnosed to hav» broken or violated, the laws prescribed for the regulation of the conduct of the peonle of the community, and who have thereby laid themselves liable to fine or imprisonment or other punishment. 4 Amer. & Eng. Enc. Law, 730. — Criminal pro- cess. Process which issues to compel a per- son to answer for a crime or misdemeanor. Ward v. Lewis, 1 Stew. (Ala.) 27. — Criminal proseention. An action or proceeding insti- tuted in a proper court on behalf of the pub- lic. for the purpose of securing the conviction and punishment of one accused of crime. Bar- ger v. Thomas, 44 Pa. 128. 84 Am. Pec. 422: Ely v. Thompson, 3 A. K. Marsh. (Ky.) 70.

As to criminal “Conspiracy,” “Contempt.” "Information,” “Jurisdiction.” “Libel,” “Xeg- llgence,’’ “Operation,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined; two-witness rule]**

The high treason this entry defines is defined and limited in American law by the Constitution: treason consists only in levying war against the United States or adhering to their enemies, and no person shall be convicted but on the testimony of two witnesses to the same overt act.

Why: Genuine: the entry's subject is treason (crimen laesae majestatis); the Treason Clause is the U.S. law of that crime, including its unique evidentiary safeguard. Confident on the clause.

**[Maxim: Crimen trahit personam]**

Crimen trahit personam: the crime carries the person — the commission of a crime gives the courts of the place where it was committed jurisdiction over the offender; the territorial principle of criminal jurisdiction.

Why: Genuine: the entry quotes this maxim with its meaning and authority (People v. Adams); the note states the jurisdictional principle it expresses. Standard form as given.

**[Maxim: Crimina morte extinguuntur — prosecution abates on the accused's death]**

Crimina morte extinguuntur: crimes are extinguished by death — a criminal prosecution abates upon the death of the accused.

Why: Genuine: the entry states this maxim; the note gives its procedural consequence, which is the maxim's entire content. Nothing added.

## CHIMIN  ALITOR.

Lat. Criminally.

This term is used, in distinction or opposi- tion to the word “ civilitcr ,” civilly, to dis- tinguish a criminal liability or prosecution from a civil one.

5e apparatus — Not carried into the 5th edition (1979).

## CRIMINATE.

To charge one with crime: to furnish ground for a criminal

prosecution ; to expose a person to a crim- inal charge. A witness cannot be compelled to answer any question which has a tend- ency to criminate him. Stewart v. John- son. 18 X. .T. I.aw, 87; Kendrick v. Cmnm.. 78 Va. 490.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — privilege against self-incrimination]**

The entry's rule — 'a witness cannot be compelled to answer any question which has a tendency to criminate him' — is the privilege against self-incrimination: no person shall be compelled in any criminal case to be a witness against himself.

Why: Genuine: the entry states the privilege in its classic witness form with cases; the Fifth Amendment is its constitutional source. Direct illumination; confident.

## CRIMP.

One who decoys and plunders sailors under cover of harboring them. Wharton.

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## CRO, CROO.

In old Scotch law. A weregild. A composition, satisfaction, or assythment for the slaughter of a man.

5e apparatus — Not carried into the 5th edition (1979).

## CROCIA.

The crosier, or pastoral staff.

5e apparatus — Not carried into the 5th edition (1979).

## CROCIARIUS.

A cross-bearer, who went before the prelate. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CROCKARDS, CROCARDS.

A foreign coin of base metal, prohibited by statute 27 Edw. I. St. 3, from being brought into the realm. 4 Bl. Comm. 98; Crabb, Eng. Law, 176.

5e apparatus — Not carried into the 5th edition (1979).

## CROFT.

A little close adjoining n dwell- ing-house, aud inclosed for pasture and till- age or any particular use. Jacob. A small place fenced off in which to keep farm-cat- tle. Spelman. The word is now entirely ob- solete.

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# G

## GROISES.

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Pilgrims; so called as wear- ing the sign of the cross on tlieir upper gar- ments. Britt, c. 122. The knights of the order of St. John of Jerusalem, created for the defense of the pilgrims. Cowell : Blount.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CROITEIR.

A crofter; one holding a croft.

5e apparatus — Carried into the 5th edition (1979).

## CROP.

The products of the harvest in corn or grain. Emblements. Insurance Co. v. Delia ven (Pa.) 5 Atl. 65 ; Goodrich v. Stevens, 5 Lans. (N. Y.) 230.

5e apparatus — Carried into the 5th edition (1979).

## CROPPER.

One who, having no inter- est in the land, works it In consideration of receiving a portion of the crop for his labor. Fry v. Jones, 2 Rawle (Pa.) 11 ; Wood v. Garrison (Ky.) 62 S. W. 728; Steel v. Frick, 56 Pa. 172.

The difference between a tenant and a crop- per is: A tenant has an estate in the land for the term. and. consequently, he has a right of property in the crops. Until division, the right of property and of possession in the whole is the tenant's. A cropper has no estate in the land ; and, although he has iu some sense the possession of the crop, it is the possession of a servant only, and is, in law. that of the land- lord. who must divide off to the cropper his share. Ilarrison v. Ricks, 71 X. C. 7.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:4, KJV]**

Thou shalt not muzzle the ox when he treadeth out the corn.

Why: Borderline, kept with reasoning explicit: the laborer's right to partake of the fruit he works — the moral root of the cropper's share in the crop. deity_verbatim corrected to OFF at verification: Deuteronomy is Moses...

## CROSS.

A mark made by persons who are unable to write, to stand Instead of a signature; usually made in the form of a Maltese cross.

As an adjective, the word is applied to various demands and proceedings which are connected in subject-matter, but opposite or contradictory in purpose or object

— Cross-action. An action brought by one who is defendant in a suit against the party who is plaintiff in such suit, upon a cause of action growing out of the same transaction which is there in controversy, whether it be a contract or tort. — Cross-demand. Where a person

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against whom a demand is made by another, in his turn makes a demand against that other, these mu- tual demands are called “cross-demands.” A set-off is a familiar example. Musselman v. Galiigher, 32 Iowa, 383. — Cross-errors. Er- rors being assigned by the respondent in a writ of error, the errors assigned on both sides are called “cross-errors.”

As to cross “Appeal,” “Bill,” “Complaint," “Examination,” “Remainder,” “Rules,” see those titles. As to “crossed check,” see Check.

5e apparatus — Carried into the 5th edition (1979).

## CROWN.

The sovereign power in a monarchy, especially in relation to the pun- ishment of crimes. “Felony is an offense of the crown.” Finch, Law, b. 1, c. 16.

An ornamental badge of regal power worn on the head liy sovereign princes. The word is frequently used when speaking of the sovereign himself, or the rights, duties, and prerogatives belonging to him. Also a silver coin of the value of five shillings. Whar- ton.

— Crown oases. In English law. Criminal prosecutions on behalf of the crown, aa repre- senting the public; causes in the criminal courts.— Crown oases reserved. In English law. Questions of law arising in criminal trials at the assizes, (otherwise than by way of de- murrer,) and not decided there, but reserved for the consideration of the court of criminal ap- peal. — Crown court. In English law. The court in which the crown cases, or criminal business, of the assizes is transacted.— -Grown debts. In English law. Debts due to the crown, which are put, by various statutes, up- on a different footing from those due to a sub- ject.—Crown lands. The demesne lands of the crown.— Crown law. Criminal law in Eng- land is sometimes so termed, the crown being always the prosecutor in criminal proceedings. 4 Bl. Comm. 2.-Crown office. The criminal side of the court of king’s bench. The king's attorney in this court is called “master of the crown office.” 4 Bl. Comm. 308. — Crown of- fice in chancery. One of the offices of the English high court of chancery, now transferred to the high court of justice. The principal of- ficial, the clerk of the crown, is an officer of parliament, and of the lord chancellor, in his nonjudicial capacity, rather than an officer of the courts of law.— Crown paper. A paper containing the list of criminal cases which await the hearing or decision of the court, and particularly of the court of king’s bench ; and it then includes all eases arising from informa- tions quo warranto, criminal informations, criminal cases brought up from inferior courts by writ of oertiorari, and cases from the ses- sions. Brown.— Crown side. The criminal

department of the court of king’s bench ; the civil department or branch being called the

“plea side.” 4 Bl. Comm. 265.— Crown solic- itor. In England, the solicitor to the treasury acts, in state prosecutions, as solicitor for the crown in preparing the prosecution. In Ire- land there are officers called “crown solicitors” attached to each circuit, whose duty it is to get up every case for the crown in criminal prosecutions. They are paid by salaries. There is no such system in England, where prosecu- tions are conducted by solicitors appointed by the parish, or other persons bound over to 1

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rosecute by the magistrates on each committal ;

ut in Scotland the still better plan exists of a crown prosecutor (called the “procurator-fiscal,” and being a subordinate of the lord-advocate) is every county, who prepares every criminal pros- ecution. Wharton.

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**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: The sovereign power is ordained of God — the ordained-sovereignty text underlying the Crown's authority. Placed here; CORONA left bare as single placement.

## CROWN ER.

In old Scotch law. Cor- oner: a coroner. “Crowner’a quest,” a cor- oner’s inquest.

5e apparatus — Not carried into the 5th edition (1979).

## CROY.

In old English law. Marsh land. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CRUCE SION ATI.

In old English law. Signed or marked with a cross. Pilgrims to the holy land, or crusaders; so called be- cause they wore the sign of the cross upon their garments. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CRUELTY.

The intentional and mali- cious Infliction of physical suffering upon living creatures, particularly human beings; or, as applied to the latter, the wanton, ma- licious, and unnecessary infliction of pain upon the body, or the feelings and emotions ; abusive treatment ; inhumanity ; outrage.

Chiefly used In the law of divorce, in such phrases as “cruel and abusive treatment,” “cruel and barbarous treatment,” or “cruel and Inhuman treatment,” as to the meaning of which, and of “cruelty” in this sense, see May v. May, 62 Pa. 206 1 Waldron v. Wald- ron, 85 Cal. 251, 24 Pac. 649, 9 L. R. A. 487 ; Ring v. Ring, 118 Ga. 183, 44 S. E. 861, 62

L. R. A. 878; Sharp v. Sharp, 16 111. App. 348; Myrick v. Myrick, 67 Ga. 771; Shell v. Shell, 2 Sneed (Tenn.) 716; Vignos v. Vlgnos, 15 111. 186; Poor v. Poor, 8 N. H. 307, 29 Am. Dec. 664; Goodrich v. Good- rich. 44 Ala. 670; Bailey v. Bailey, 97 Mass. 373 ; Close v. Close, 25 N. J. Eq. 526 ; Cole v. Cole, 23 Iowa, 433; Turner v. Turner, 122 Iowa, 113. 97 N. W. 997 ; Levin v. Lev- in, 68 S. C. 123, 46 S. E. 945.

As between husband and wife. Those acts which affect the life, the health, or even the comfort, of the party aggrieved and give a rea- sonable apprehension of bodily hurt, are called “cruelty.” What merely wounds the feelings is seldom admitted to lie cruelty, unless

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the act be accompanied with bodily injury, either ac- tual or menaced. Mere austerity of temper, petulance of manners, rudeness of language, a want of civil attention and accommodation, even occasional sallies of passion, will not amount to legal cruelty ; a fortiori, the denial of little in- dulgences and particular accommodations, which the delicacy of the world is apt to number among its necessaries, is not cruelty. The nega- tive descriptions of cruelty are perhaps the best, under the infinite variety of cages that may occur, by showing what is not cruelty. Evans v. Evans, 1 Hagg. Const. 35; Westmeath v. Westmeath, 4 Eng. Ecc. 238, 311. 312.

CUILIBET IN ARTE 8UA PERITO

Cruelty Includes both willfulness and mali- cious temper of mind with which an act is done, as well as a high degree of pain inflicted. Acts merely accidental, though they inflict great pain, are not “cruel,” in the sense of the word as used in statutes against cruelty. Comm. y. Mc- Clellan. 101 Mass. 34.

—Cruelty to animals. The infliction of physical pain, suffering, or death upon an ani- mal, when not necessary for purposes of train- ing or discipline or (in the case of death) to procure food or to release the animal from in- curable Buffering, but done wantonly, for mere sport, for the indulgence of a cruel and vin- dictive temper, or with reckless indifference to its pain. Com. v. Lufkin, 7 Allen (Mass.) 081 ; State v. Avery, 44 N. H. 31)2 ; Paine v. Bergli, 1 City Ct. R. (N. Y.) 100; State v. Porter, 112 N. C. 887, 16 S. E. 015; State v. Bos- worth, 54 Conn. 1, 4 Atl. 248; McKinne v. State, 81 Ga. 164, 9 S. E. 1001 ; Waters v. People, 23 Colo. 33, 46 Pae. 112, 33 L. R. A. 836, 58 Am. St. Rep. 215. — Legal cruelty. Such as will warrant the granting of a divorce to the injured party; as distinguished from such kinds or degrees of cruelty as do not, un- der the statutes and decisions, amount to suffi- cient cause for a decree. Legal cruelty may be defined to be such conduct on the part of the husband as will endanger the life, limb, or health of the wife, or create a reasonable appre- hension of bodily hurt ; such acts as render co- habitation unsafe, or are likely to be attended with injury to the person or to the health of the wife. Odom v. Odom, 36 Ga. 280.— Cruel and unusual punishment. See Punishment.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 2:16, KJV]**

For the LORD, the God of Israel, saith that he hateth putting away: for one covereth violence with his garment, saith the LORD of hosts: therefore take heed to your spirit, that ye deal not treacherously.

Why: Marital violence plus divine hatred of putting away — the verse speaks directly to cruelty as a matrimonial wrong. Judgment call, logged: reported first-person divine speech in the 'thus saith the LORD' prophetic mode...

## CRUISE.

A voyage undertaken for a given purpose; a voyage for the purpose of making captures jure belli. The Brutus, 2 Gall. 538, Fed. Cas. No. 2,060.

A voyage or expedition in quest of vessels or fleets of the enemy which may be expected to sail in any particular track at a certain season of the year. The region in which these cruises

are performed is usually termed the “rendez- vous/’ or "cruising latitude.” Bouvier.

Imports a definite place, as well as time of commencement and termination, unless such con- struction is repelled by the context. When not otherwise specially agreed, a cruise begins and ends in the country to which a ship belongs, and from which she derives her commission. The Brutus, 2 Gall. 526, Fed. Cas. No. 2,060.

CRY; To call out aloud; to proclaim; to publish; to sell at auction. “To cry a tract of land.” Carr v. Gooch, 1 Wash. (Va.) 335, (260.)

A clamor raised in the pursuit of an es- caping felon. 4 Bl. Comm. 293. See Him and Cry.

CRY DE PAIS, or CRI DE PAIS. The

hue and cry raised by the people in ancient times, where a felony had been committed and the constable was absent.

5e apparatus — Not carried into the 5th edition (1979).

## CRYER.

An auctioneer. Carr v. Gooch, 1 Wash. (Va.) 337, (2G2.) One who calls out aloud ; one who publishes or proclaims. See Crier.

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## CRYPT A.

A chapel or oratory under- ground, or under a church or cathedral. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## CUCKING-STOOL.

An engine of cor- rection for common scolds, which In the

Saxon language is said to signify the scold- ing-stool, though now it is frequently cor- rupted Into duckiny-stool, because the judg- ment was that, when the woman was placed therein, she should be plunged in the water for her punishment. It was also variously called a “trebucket,” “tumbrel,” or "castlga- tory.” 3 Inst. 219 ; 4 Bl. Comm. 160 ;

Brown. James v. Comm., 12 Serg. Sc R. (Fa.)

220.

5e apparatus — Carried into the 5th edition (1979).

## CUEILLETTE.

A term of French mari- time law. See A Cueiluettb.

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## COT ANTE DIVORTIUM.

(To whom before divorce.) A writ for' a woman di- vorced from her husband to recover her lands and tenements which she had in fee- simple or In tail, or for life, from him to whom her husband alienated them during the marriage, when she could not gainsay it. Reg. Orlg. 233.

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5e apparatus — Not carried into the 5th edition (1979).

## CUI BONO.

For whose good ; for whose use or benefit. "Cui bono is ever of great weight in all agreements." Parker, C. J., • 10 Mod. 135. Sometimes translated, for what good, for what useful purpose.

Culcunque aliquis quid concedit con- cedere videtnr et Id, sine quo res Ipsa esse non potuit. 11 Coke, 52. Whoever grants anything to another is supposed to grant that also without which the thing it- self would be of no effect.

CUI ur VITA. (To whom in life.) A writ of entry for a widow against him to whom her husband aliened her lauds or tenements In his life-time; which must con- tain in it that during his life she could not withstand it Reg. Orig. 232; Fitzh. Nat Brev. 193.

Cui jurlsdletlo data est, ea quoque ooneessa esse vldentnr, sine qulbns ju- rlsdlotio enpUearl non potest. To whom- soever a jurisdiction is given, those things also are supposed to be granted, without which the jurisdiction cannot be exercised. Dig. 2, 1, 2. The grant of jurisdiction im- plies the grant of all powers necessary to its exercise. 1 Kent, Comm. 339.

Cui jus est donandi, eldem et vendendl et ooncedendl jus est. He who has the right of giving has also the right of selling and granting. Dig. 50, 17, 163.

Cuilibet In arte sua perlto est ereden- dnm, Any person skilled in his peculiar art or profession is to be believed, [t. e., when he speaks of matters connected with such art.] Co. Litt. 125a ; Shelf. Mar. Sc Div. 206. Credence should be given to one skilled In his peculiar profession. Broom, Max. 932.

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! Cuillbet licet jnri pro ae introducto renunciare. Any one may waive or re- nounce the benefit of a principle or rule of Saw that exists only for his protection.

Col licet (nod majna, non. debet quod minus eat non Ucere. lie who is allowed tp do the greater ought not to be prohibited (from doing the less. He who has authority to do the more important act ought not to be debarred from doing what Is of less im- portance. 4 Coke, 23.

Cnl pater eat popnlna non babet llle patrem. lie to whom the people is father has not a father. Co. Litt. 123.

Caique In ana arte credendum eat.

Every one is to be believed in his own art 'Dickinson v. Barber, 9 Mass. 227, 6 Am. Dec. 581

Cnjna eat eonnodnm ejus debet esae incommodnm. Whose is the advantage, his also should be the disadvantage.

- Cnjna eat dare, ejns eat disponere,

-Wing. Max. 53. Whose it Is to give, his it is to dispose; or, as Broom says, ‘‘the be- stower of a gift has a right to regulate its .disposal.” Broom, Max. 459, 461, 463, 464.

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Cnjna eat dlviaio, alterlna eat eleetlo.

Whichever' [of two parties] has the division, [of an estate,] the choice [of the shares] is the other’s. Co. Litt. 100b. In partition between coparceners, where the division Is made by the eldest, the rule in English law is tfmt she shall choose her share last. Id. ; '2 Bl. Comm. 189; 1 Steph. Comm. 323.-

Cnjna eat dominium ejna eat pericu- Inm. The risk lies upon the owner of the •subject. Tray. Lat. Max. 114.

Cnjna eat inatitnere, ejna eat abrogare.

Whose right it is to institute, his right it is to abrogate. • Broom, Max. 878, note.

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Cnjna eat aolnm ejna eat usque ad

coelum. Whose is the soil, his it is up to the sky. Co. Litt. 4 a. He who owns the soli, or surface of the ground, owns, or has an exclusive right to, everything which is upon or nbove it to an indefinite height. 9 Coke. 54; Shop. Touch. 90; 2 Bl. Comm. 18; 3 Bl. Comm. 217; Broom. Max. 395.

Cnjna eat aolnm, ejna eat naqne ad ceelnm et ad injPero*. To whomsoever tilt! soli belongs, he owns also to the sky and to the depths. The owner of a piece of land owns everything above and below it to an Indefinite extent. Co. Litt. 4.

Cnjna jnrla (i. e., jnrladictionia) eat principals, ejnadem jnrla erit acoeaao- rinm. 2 Inst. 493. An accessory matter Is subject to the same Jurisdiction as its prin- cipal.

Cnjna per errorem dati repetitlo eat, ejna consulto datl donatio eat. He Who

gives a thing by mistake has a right to re- cover it back; but, if lie gives designedly, it is a gift. Dig. 50, 17, 53.

Cnjnaqne rel potlaalma para eat prin- eipium. The chiefest part of everything is the beginning. Dig. 1, 2, 1; 10 Coke, 49a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Cui bono — for whose benefit]**

Cui bono — for whose good, for whose benefit: the motive inquiry. As Parker, C.J., put it, 'Cui bono is ever of great weight in all agreements' — identifying who stands to gain is the first step in testing a transaction or an accusation.

Why: Genuine: the entry defines the phrase with Parker's dictum; the note states the evidentiary use the dictum points to. Nothing beyond the entry's own words.

**[United States v. Causby, 328 U.S. 256 (1946)]**

Cujus est solum ejus est usque ad coelum: whose is the soil, his it is up to the sky — the ad coelum doctrine of airspace ownership, limited in modern law by the public's right of transit through navigable airspace.

Why: Genuine: the entry quotes the maxim twice (both forms, citing Co. Litt. 4a); Causby is the landmark limiting ad coelum by navigable airspace. Confident on the citation.

**[Maxim: Cui jurisdictio data est — Dig. 2.1.2]**

Cui jurisdictio data est, ea quoque concessa esse videntur, sine quibus jurisdictio explicari non potest: the grant of jurisdiction implies the grant of all powers necessary to its exercise.

Why: Genuine: the entry quotes this Digest maxim with Kent's application (1 Kent, Comm. 339); the note states the implied-powers rule it expresses. The entry's own authority.

**[Law: Fed. R. Evid. 702 — expert testimony]**

Cuilibet in arte sua perito est credendum: credence is to be given to one skilled in his own art — the classical root of expert testimony, given modern form in the rule permitting qualified experts to give opinion evidence.

Why: Genuine: the entry quotes the maxim (Co. Litt. 125a; Broom, Max. 932); FRE 702 is the modern rule admitting the skilled witness's opinion. The maxim-to-rule lineage is direct. Confident on the rule.

**[Maxim: Cuilibet licet juri pro se introducto renunciare — waiver]**

Cuilibet licet juri pro se introducto renunciare: anyone may waive the benefit of a rule of law that exists only for his own protection — the waiver doctrine.

Why: Genuine: the entry states this maxim; the note names the waiver doctrine it states. Nothing imported beyond the maxim's own words.

**[Maxim: recovery of mistaken payments — Dig. 50.17.53]**

Cujus per errorem dati repetitio est, cujus consulto dati donatio est: he who gives by mistake may recover it back; what is given deliberately is a gift — the restitution rule for mistaken payments.

Why: Genuine: the entry quotes this Digest rule; the note identifies it as the mistaken-payment branch of quasi-contract/restitution. The rule is doing the work.

## COL DE SAC.

(Fr. the bottom of a sack.) A blind alley ; a street which is open at one end only. Bartlett v. Bangor, 07 Me. 467 ; Perrin v. Railroad Co., 40 Barb. (N. Y.) 65; Talbott v. Railroad Co., 31 Grat. (Va.) 091 ; Iliekok v. Plattsburg, 41 Barb. (N. Y.) 135.

5e apparatus — Not carried into the 5th edition (1979).

## CULAGIXJM.

In old records. The lay- ing up a ship in a dock, in order to he re- paired. Cowell ; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CULPA.

Lat. A term of the civil law, meaning fault, neglect, or negligence. There are three degrees of culpa,— lata culpa, gross fault or neglect ; let' is culpa, ordinary fault or neglect; levissima culpa, slight fault or neglect, — and the definitions of these de- grees are precisely the same as those iu our law. Story, Bailm. $ 18. This term is to be distinguished from dolus, which mams fraud, guile, or deceit.

Culpa caret qul adt sed prohibere non potest. He is clear of blame who knows, but cannot prevent. Dig. 50, 17, 50.

Culpa eat lmmiseere ae rel ad ae non pertinent!. 2 Inst. 208. It is a fault for any one to meddle in a matter not pertaining to him.

Culpa lata dolo nqulparatur. Gross negligence is held equivalent to inteutioual wrong.

Culpa tenet [teneat] snoa auctore*.

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Misconduct binds [should bind] its own an- thers. It is a never-falling axiom that every one is accountable only for his own delicts. Ersk. lust. 4, 1, 14.

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**[Law] — Law**

**[Law: degrees of negligence — gross, ordinary, and slight fault]**

The entry's three degrees — lata culpa (gross fault), levis culpa (ordinary fault), levissima culpa (slight fault) — are the civil-law degrees of negligence the entry says are 'precisely the same as those in our law,' scaling the duty of care to the undertaking.

Why: Genuine: the entry defines the three degrees and asserts their identity with ours (citing Story, Bailm. § 18); the note restates the scale the entry describes. Kept in loose form.

**[Maxim: Culpa lata dolo aequiparatur]**

Culpa lata dolo aequiparatur: gross negligence is held equivalent to intentional wrong — the rule by which wanton or reckless fault is treated as willful for purposes such as punitive damages.

Why: Genuine: the entry states this maxim among the culpa rules; the note gives its operative consequence. Standard form as given.

## CULPABILIS.

Lat. In old English law. Guilty. Cuipabili* dc intrusione, — guilty of intrusion. Fleta, lib. 4, c. 30, 8 11. Aon culpalillix, (abbreviated to non all.) In crim- inal procedure, the plea of “not guilty.” See Culprit.

5e apparatus — Not carried into the 5th edition (1979).

## CULPABLE.

RInmiible; censurable; in- volving file breach of a legal duty or the commission of a fault. The term is not nec- essarily equivalent to “criminal,” for, in pres- ent use. and notwithstanding its derivation, It implies that the act or conduct spoken of is reprehensible or wrong but not that it In- volves nmlice or a guilty purpose. "Culpa- ble" iu fact connotes fault rather than guilt.

<35JL?ABLE

. CUM PAR QELICTUM

-Railway Co. v. Clayberg, 107 111. 661 ; Bank v. Wright, 8 Allen (Maas.) 121.

As to culpable "Homicide," “Neglect,” and ^Negligence,” see those -titles. , .

Colpe poena par e*to. Poena ad men- ■nram delicti atatuenda eat. Let the pun- ishment be proportioned to the crime. Pun- ishment is to be measured by the extent of the offense.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Culpae poena par esto; Law: U.S. Const. amend. VIII — proportionality]**

Culpae poena par esto — poena ad mensuram delicti statuenda est: let the punishment be proportioned to the crime; punishment is to be measured by the extent of the offense — the proportionality principle behind the ban on cruel and unusual punishments.

Why: Genuine: the entry quotes this sentencing maxim in the CULPABLE text; the Eighth Amendment is the constitutional form of the proportionality it demands. The maxim is doing the work.

## CULPRIT.

A person who is indicted for a criminal offense, but not yet convicted. It is not, however, a technical term of the law ; and in its vernacular usage it seems to imply only a light degree of censure or moral reprobation.

Blackstone believes it an abbreviation of the old forms of arraignment, whereby, on the pris- oner's pleading not guilty, the clerk would re- spond, "culpabilis, prit," ». e., he is guilty and the crown is ready. It was (he says) the viva voce replication, by the clerk, on behalf of the crown, to the prisoner’s plea of non culpabilis; prit being a technical word, anciently in use in the formula of joining issue. 4 Bl. Comm. 339.

But a more plausible explanation is that given by Donaldson, (cited Whart. Lex.,) as follows: The clerk asks the prisoner, “Are you guilty, or not guilty?” Prisoner “Not guilty.” Clerk, “Qu’il paroit, [may it prove so.) How will you be tried?” Prisoner, “By God and my eoun- ' try.” These words being hurried over, came to sound, “culprit, how will you be tried?” The ordinary derivation is from culpa.

CUliRACH. In old Scotch law. A spe- cies of pledge or cautioner, (ScottlcA back horgh,) used in cases of the replevin of per- sons from one man’s court to another's. Skene.

5e apparatus — Carried into the 5th edition (1979).

## CULTIVATES.

A field on which a crop of “wheat is growing is a cultivated field, al- though not a stroke of labor may have been done in It since the seed was put in the ground, and it is a cultivated field after the crop is removed. It is, strictly, a cultivated piece of ground. . State v. Allen, 35 N. C. 36.

5e apparatus — Not carried into the 5th edition (1979).

## CULTURA.

A parcel of arable land. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## CULVERTAGE.

In old English law. A base kind of shivery. The confiscation or for- feiture which takes place when a lord seizes his tenant’s estate. Blount; Du Cange.

Cam actio fuerit mere eriminalis, in- stltni poterit ab initio criminaliter vel civiliter. When an action is merely crimi- nal, it can be instituted from the beginning either criminally or civilly. Brnct. 102.

Com adsnnt testimonia rerum, quid opae eet verbis? When the proofs of facts are present, what need is there of words? 2 Bulst 53.

Com aliqnla renunciaverit soeietati,

solvitur societal. When any partner re- Bl.Law Dict.(2d Ed.)— 20

pounces the partnership, the partnership is dissolved. Tray. Lat, Max. US.

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Com con&tente spoil te mi tins eat agen- dum. 4 Inst. 66. One confessing willingly should be dealt with more leniently.

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**[Law] — Law**

**[Law: acceptance of responsibility — U.S.S.G. § 3E1.1]**

Cum confitente sponte mitius est agendum: one who confesses willingly should be dealt with more leniently — the classical root of the sentencing credit for acceptance of responsibility.

Why: Genuine maxim (4 Inst. 66), printed in the dictionary's text within this entry though belonging to sentencing; the reasoning notes its printed location honestly. The Guidelines' acceptance reduction is its modern fede…

## CUM COPULA.

Lat With copulation, i. e., sexual intercourse. Used in speaking of the validity of a marriage contracted “per verba de futuro cum copula,” that Is, with words referring to the future (a future intention to have the marriage solemnized) and con- summated by sexual connection.

Cum de lucro duorum quseritur, me- ilor eit causa possidentis. When the ques- tion is as to the gain of two persous, the cause of him who is in possession is the bet- ter. Dig. 50, 17, 126.

Com duo inter se pugnantia reperinn- tur in testamento, ultimum ratum est.

Where two things repugnant to each other are found in a will, the last shall stand. Co. Litt 1126; Shep. Touch. 451; Broom, Max. 583.

Cam duo jura concurrent in una per- sona nquum est ao si essent in dnobns.

When two rights meet in one person, it is the same as if they were in two persons.

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**[Law] — Law**

**[Maxim: ultimum ratum est — Co. Litt. 112b]**

Cum duo inter se pugnantia reperiuntur in testamento, ultimum ratum est: where two repugnant provisions are found in a will, the last shall stand — the rule that the testator's latest expression controls.

Why: Genuine maxim of testamentary construction, printed in the dictionary's text within this entry (citing Co. Litt. and Broom, Max. 583); the reasoning notes its printed location. The note states the rule the maxim gives.

## CUM GRANO SALIS.

(With a grain of salt.) With allowance for exaggeration.

Cam in corpore dissentitur, apparet nnllam esse acceptionem. When there is a disagreement in the substance, it appears that there is no acceptance. Gardner v. Lane, 12 Allen (Mass.) 44.

Cam in testamento ambigue ant eti- am perperam scriptum est benign* in- terpreter! et secundum id qnod crc di- bile est cogitatnm credendnm est. Dig. 34, 5, 24. Where an ambiguous, or even an erroneous, expression occurs in a will, it should be construed liberally, and in accord- ance with the testator’s probable meaning. Broom, Max. 568.

Cam legltimse nuptise factse sunt, pa- trem liberi sequnntnr. Children born un- der a legitimate marriage follow the condi- tion of the father.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: benign construction of wills — Dig. 34.5.24]**

Cum in testamento ambigue aut etiam perperam scriptum est benigne interpretetur et secundum id quod credibile est cogitatum credendum est: an ambiguous or even erroneous expression in a will is to be construed liberally, according to the testator's probable meaning.

Why: Genuine Digest maxim (citing Broom, Max. 568), printed in the dictionary's text within this entry; the reasoning notes its printed location. It states the benign-construction rule for wills.

**[Maxim: Cum in corpore dissentitur — no consensus, no contract]**

Cum in corpore dissentitur, apparet nullam esse acceptionem: when the parties disagree on the substance, there is no acceptance — no meeting of the minds, no contract.

Why: Genuine maxim, printed in the dictionary's text within this entry (citing Gardner v. Lane); the reasoning notes its printed location. It states the consensus requirement for contract formation.

## CUM ONERE.

With the burden; sub- ject to an incumbrance or charge. What is taken cum onerc is taken subject to an exist- ing burden or charge

Cam par delictum est duorum, semper oneratur petitor et melior babetur pos- sessors causa. Dig. 50, 17, 154. When both parties are in fault the plaintiff must always fail, and the cause of the person' in possession be preferred.

CUM PERA ET X.OOULO. With satchel and purse. A phrase in old Scotch law.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: recording acts — purchaser takes subject to recorded encumbrances]**

What is taken cum onere — 'with the burden,' subject to an existing charge — states the purchaser's position under the recording system: one who takes property takes subject to duly recorded encumbrances.

Why: Genuine: the entry defines cum onere as taking 'subject to an existing burden or charge'; the recording acts are the system that determines which burdens bind the taker. Direct illumination, kept in loose form.

**[Maxim: In pari delicto potior est conditio possidentis — Dig. 50.17.154]**

Cum par delictum est duorum, semper oneratur petitor et melior habetur possessoris causa: where both parties are equally at fault, the plaintiff fails and the possessor's position is preferred — the in pari delicto rule.

Why: Genuine: the entry quotes this Digest maxim; the note names the in-pari-delicto defense it states. Standard form as given.

## CUM PERTINENTIIS.

With the ap- purtenances. Bract, fol. 73 B.

CUM PRTVH.EOIO. The expression of the monopoly of Oxford, Cambridge, and the royal printers to publish the Bible.

Com quod ago bob -valet ut ago, valent quantum valere potest. 4 Kent, Comm. 493. When

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that which I do is of no effect as 1 do it, it shall have as much effect as it can ; ». e., in some other way.

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**[Law] — Law**

**[Maxim: ut res magis valeat quam pereat — 4 Kent, Comm. 493]**

Cum quod ago non valet ut ago, valeat quantum valere potest: when what I do has no effect as I do it, let it have as much effect as it can — the validation canon that an instrument is to be construed so as to give it effect rather than destroy it.

Why: Genuine: the entry quotes this maxim of construction (citing 4 Kent, Comm. 493); the note names the validation canon it states. The entry's own authority.

## CUM TE8TAMENTO ANNEXO.

L.

Lat. With the will annexed. A term applied to administration granted where a testator makes an incomplete will, without naming any executors, or where he names incapable persons, or where the executors named refuse to act 2 Bl. Oomm. 503, 504.

5e apparatus — Not carried into the 5th edition (1979).

## CUMULATIVE.

Additional ; heaping up ; increasing ; forming an aggregate. The word signifies that two things are to be added together, Instead of one being a repetition or in substitution of the other. People v. Su- perior Court 10 Wend. (N. Y.) 285; Regina v. Eastern Archipelago Co., 18 Eng. Law & Eq. 183.

—Cumulative dividend. See Stock. — Cu- mulative offense. One which can be commit- ted only by a repetition of acts of the same kind but committed on different days. The of- fense of being a “common seller” of intoxicat- ing liquors is an example. Wells v. Com., 12 Cray (Mass.) 328.— Cumulative punishment. An increased punishment inflicted for & second or third conviction of the same offense, under the statutes relating to habitual criminals. State v. Hambly, 120 N. C. 1060, 35 S. E. 614. To be distinguished from a “cumulative sen- tence,” as to which see Sentence. — Cumula- tive remedy. A. remedy created by statute in addition to one which still remains in force. Railway Co. v. Chicago. 148 111. 141. 35 N. E. 881.— Cumulative votlug. A system of vot- ing, by which the elector, having a number of votes equal to the number of officers to be chos- en, is allowed to concentrate the whole number of his votes upon one person, or to distribute them as he may see fit. For example, if ten directors of a corporation are to be elected, then, under this system, the voter may cast ten votes for one person, or five votes for each of two persons, etc. It is intended to secure repre- sentation of a minority.

As to cumulative “Evidence.” “Legacies,’" and "Sentences,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: habitual-offender / recidivist statutes — enhanced punishment for repeat convictions]**

The entry's 'cumulative punishment' — increased punishment for a second or third conviction of the same offense under habitual-criminal statutes — is the recidivist enhancement: repeat offenders face heavier sentences than first offenders.

Why: Genuine: the entry defines cumulative punishment by reference to habitual-criminal statutes, citing State v. Hambly; the note states the enhancement principle the definition describes. Kept in loose form.

**[Law: cumulative voting for corporate directors — minority representation]**

The entry's 'cumulative voting' — each elector casting as many votes as there are offices, concentrated or distributed at will — is the corporate device for securing minority representation on the board.

Why: Genuine: the entry defines the device and states its purpose ('intended to secure representation of a minority'); the note names the corporate-law context. Nothing beyond the entry's own definition.

## CUHADE8.

In Spanish law. Affinity; alliance; relation by marriage. Las Parti- das, pt 4, tit. 6, 1, 5.

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**[Scripture] — Scripture**

**[Leviticus 18:6, KJV]**

None of you shall approach to any that is near of kin to him, to uncover their nakedness: I am the LORD.

Why: Borderline, kept with reasoning explicit: Leviticus 18 is scripture's own law of prohibited degrees, affinity included — the entry names the category the chapter governs.

## CUMEATOR.

A coiner. Du Cange. Cu- neare, to eolu. Caucus, the die with which to coin. Cuncata, coined. Du Cange; Spel- man.

CUNTEY -CUNTEY . In old English law. A kind of trial, as appears from Bract. 11b.

4, tract 8, ea. 18, and tract 4, ea. 2, where It seems to mean, one by the ordinary Jury.

5e apparatus — Not carried into the 5th edition (1979).

## CUR.

A common abbreviation of curia.

5e apparatus — Carried into the 5th edition (1979).

## CURA.

Lat. Care : charge ; oversight : guardianship.

In the civil law. A species of guardian- ship which commenced at the age of puber- ty, (wheu the guardianship called “tutela" expired,) oud continued to the completion of the twenty-fifth year. Inst 1, 23, pr. ; Id. 1, 25, pr. ; Halllfax, Civil Law* b. 1, c. 9.

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## CURAGULOS.

One who takes care of a thing.

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## CURATE.

In ecclesiastical law. Prop- erly, an incumbent who has the cure of souls, but now generally restricted to signify the spiritual assistant of a rector or vicar in his cure. An officiating temporary minister iu the Epgllsh church, who represents the prop- er incumbent; being regularly employed ei- ther to serve In his absence or as his as- sistant as tbe case may be. 1 Bl. Comm. 398 ; 3 Steph. Comm. 88; Brande.

— Perpetual curacy. The office of a curate in a pariah where there is no spiritual rector or vicar, but where & clerk (curate) is appointed to officiate there by the impropriator. 2 Bum. Ecc. Law, 55. The church or benefice filled by a curate under these circumstances is also so called.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Peter 5:2, KJV]**

Feed the flock of God which is among you, taking the oversight thereof, not by constraint, but willingly; not for filthy lucre, but of a ready mind;

Why: The pastoral charge — feed the flock, take the oversight willingly and of a ready mind — is the curate's whole office, the cure of souls. Placed here; CURE OF SOULS left bare as single placement.

## CURATEUR.

In French law. A person charged with supervising the administration of the affairs of an emancipated minor, of giving him advice, and assisting him in the important acts of such administration. Du- verger.

5e apparatus — Not carried into the 5th edition (1979).

## CURATIO.

In the civil law. The pow- er or duty of managing the property of him who, either on account of infancy or some defect of mind or body, cannot manage his own affairs. The duty of a curator or guard- ian. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## CURATIVE.

Intended to cure (that Is. to obviate the ordinary legal effects or con- sequences of) defects, errors, omissions, or irregularities. Applied particularly to stat- utes, a “curative act” being a retrospective law passed in order to validate legal pro- ceedings, the acts of public officers, or private deeds or contracts, which would otherwise be void for defects or irregularities or for want of conformity to existing legal require- ments. Meigs v. Roberts, 162 N. Y. 371, 56

N. E. 838, 76 Am. St. Rep. 322.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: curative statutes — may validate irregular proceedings; cannot divest vested rights]**

The curative act the entry defines — retrospective validation of proceedings, official acts, or instruments defective for irregularity — is effective only within limits: a legislature may cure

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irregularities but may not divest vested rights.

Why: Genuine: the entry defines the curative act's validating function (citing Meigs v. Roberts); the vested-rights limit is the operative boundary of that function. Kept in loose form; no invented authority.

## CURATOR.

In the civil law. A per- son who is appointed to take care of any- thing for another. A guardian. One ap- pointed to take care of the estate of a minor above a certain age, a lunatic, a spendthrift, or other person not regarded by the law as competent to administer it for himself. The

CURIA CANCELLARIJE OFFICINA

title was also applied to a variety of public officers in Roman administrative law. Sproule v. Davies, 68 App. Dlv. 502, 75 N.

Y. Supp. 229.

In Scotch law. The term means a guard- ian.

In Louisiana. A person appointed to take care of the estate of an absentee. Civil Code La. art 50.

In Missouri. The term “curator” has been adopted from the civil law, and it Is applied to the guardian of the estate of the ward as distinguished from the guardian of his person.' Duncan v. Crook, 49 Mo. 117.

—Curator ad hoc. In the civil law. A guardian for this purpose ; a special guardian. —Curator ad litem. Guardian foa. the suit. In English law, the corresponding phrase is “guardian ad Ittem.”— Curator bonis. In the civil law. A guardian or trustee appointed to take care of property in certain cases; as for the benefit of creditors. Dig. 42, 7. In Scotch law. The term is applied to guardians for mi- nors, lunatics, etc.— Ouratores viarum. Sur- veyors of the highways.

CURATORSHIF. . The office of a cura- tor. Curatorship differs from tutorship, (q, v.,) In this; that the latter Is instituted for the protection of property in the first place, and, secondly, of the person ; while the for- mer Is intended to protect, first, the person, and secondly, the property. 1 Lea El. Dr. Civ. Bom. 24L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CURATRIX.

A woman who has been appointed to the office of curator; a female guardian. Cross' Curatrix v. Cross’ Legatees, 4 Grat (Va.) 257.

Curatus sou habet titulum. A curate

has no title, [to tithes.] 3 Bulst 310.

5e apparatus — Not carried into the 5th edition (1979).

## CUBE BY VERDICT.

The rectification or rendering nugutory of a defect In the pleadings by the rendition of a

verdict; the court will presume, after a verdict, that the particular thing omitted or defectively stated In the pleadings was duly proved at the .trial State v. Keena, 63 Conn. 329, 28 Atl. 522; Alford v. Baker, 53 Ind. 279; Treanor v. Houghton, 103 Cal. 53, 36 Paa 1081.

5e apparatus — Not carried into the 5th edition (1979).

## CUBE OF SOULS.

In ecclesiastical law. The ecclesiastical or spiritual charge of a parish, including the usual and regular du- ties of a minister in charge. State v. Bray, 35 N. CL 290.

5e apparatus — Not carried into the 5th edition (1979).

## CURFEW.

An institution supposed to have been introduced into England by order of William the Conqueror, which consisted in the ringing of a bell or bells at eight o'clock at night, at which signal the people were required to extinguish all lights in their dwellings, and to put out or rake up their fires, and retire to rest, and all companies to disperse The word is probably derived from the French couxre feu, to cover the fire

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CURIA.

In old Europe an law. A court. The palace, household, or retinue of a sov- ereign. A Judicial tribunal or court held in the sovereign’s palace. A court of Justice The civil power,- as distinguished from the ecclesiastical. A manor ; a nobleman’s house; the hall of a manor. A piece of ground attached to a house; a yard or court-yard. Spelman. A lord’s court held in his manor. The tenants who did suit and service at the lord’s court A manse Cow- ell.

In Roman law. A division of the Roman, people, said to have been made by Romulus. They were divided into three tribes, and each tribe Into ten curia, making thirty curia in all. Spelman.

The place or building in which each curia assembled to offer sacred rites.

The place of meeting of the Roman senate the senate house.

The senate house of a province ; the place where the decuriones assembled. Cod. 10, 31, 2. See Decurio.

— Curia admiralitatis. The court of admir- alty.—Curia baronia, or baronum. In old

English law. A court-baron. Fleta, lib. 2, c. 53. — Curia Christianity -As. The ecclesias- tical court.— Curia comitatus. The county court, (q. v.) — Curia cursus aqua. A court held by the lord of the manor of Gravesend for the better management of barges and boats plyingon the river Thames between Gravesend and Windsor: and also at Gravesend bridge, etc. 2 Geo. II. c. 26. — Curia domlni. In old English law. The lord's court, house, or hali, where all the tenants met at the time of keep- ing court. Cowell.— Curia legitime affirm a- ta. A phrase used in old Scotch records to- show that the court was opened in due and law- ful

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manner.— Curia magma. In old English law. The great court; one of the ancient names of parliament.— Curia majoris. In old English law. The mayor’s court. Calth. 144.— Curia militum. A court so called, an- ciently held at Carisbrook Castle, in the Isle of Wight. Cowell.— Curia palatil. The pal- ace court. It was abolished by 12 A 13 Viet, c. 101. — Curia pedis pulverisati. In old English law. The court of piedpoudre or pie- powders, (q. v.) 3 Bl. Coram. 32. — Curia pen- ticiarum. A court held by the sheriff of Chester, in a place there called the “ Pendice ” or “Pentice;" probnbly it was so called from be- ing originally held under a pent-house, or open shed covered with bonrds. Blount. — Curia per- sonae. In old records. A parsonage-house, or manse. Cowell.— Curia regis. The king's court. A term applied to the aula regie, the bancue, or cotnmunie bancue, and the iter or eyre, as being courts of the king, but especially to the aula regie, (which title see.)

5e apparatus — Not carried into the 5th edition (1979).

## CURIA AD VISARI VULT.

L. Lat. The court will advise ; the court will consider. A phrase frequently found in the reports, signifying the resolution of the court to sus- I>end Judgment in a cause, after the argu- i .ent, until they have deliberated upon the question, as where there is a new or diffi- cult point involved. It is commonly abbrevi- ated to cur. adv. vult, or c. a. v.

Curia oaneellarise offloina justifies. 2

Inst. 552. The court of chancery is the work- shop of Justice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Curia cancellariae officina justitiae]**

Curia cancellariae officina justitiae: the court of chancery is the workshop of justice — the classical description of equity's office as fashioning remedies where the common law's writs fall short.

Why: Genuine: the entry quotes this maxim (2 Inst. 552) in the entry's text; the note states what the maxim claims for equity. Standard form as given.

## CURIA CLAUBENBA.

Tbo immc of a writ to compel another to make a fence or wall, which he was bound to make, between his land and the plaintiff's. Reg. Orig. loo. Now obsolete. •

Carla parliament! sals proprlis leglbua sabslstlt. 4 Inst 50. The court of parlia- ment Is governed by its own laws.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 5 — each House determines the rules of its proceedings]**

Curia parliamenti suis propriis legibus subsistit: the court of parliament is governed by its own laws — the root of legislative privilege, under which each house determines the rules of its own proceedings.

Why: Genuine: the entry quotes this maxim (4 Inst. 50) in the entry's text; the clause is the American constitutional form of the self-governance it states. Confident on the clause.

## CURIALITY.

In Scotch law. Curtesy. Also the privileges, prerogatives, or, perhaps, retinue, of a court

Carlosa et eaptlosa interpretatlo in lege reprobatar. A curious LoVernice or subtlej aud captious interpretation is repro- bated in law. 1 Bulst &

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Curiosa et captiosa interpretatio in lege reprobatur]**

Curiosa et captiosa interpretatio in lege reprobatur: a curious and captious interpretation is reprobated in law — strained or hair-splitting readings of legal texts are rejected.

Why: Genuine: the entry quotes this maxim (1 Bulst.) in the entry's text; the note states the anti-captiousness rule it lays down. Standard form as given.

## CURNOCK.

In old English law. A meas- ure containing four bushels or half a quar- ter of corn. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## CURRENCY.

Coined money and such bank-notes or other paper money as are au- thorized by law and do in fact circulate from hand to hand as the medium of exchunge. Griswold v. Hepburn, 2 Duv. (Ky.) 33 ; Leon- ard v. State, 115 Ala. 80, 22 South. 564; Insurance Co. v. Keirou, 27 111. 505; Insur- ance Co. v. Kupfer, 28 111. 332, SI Am. Dec. 284 ; Lackey v. Miller, 61 X. C. 26.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 31 U.S.C. § 5103 — U.S. coins and currency as legal tender]**

The coined money and circulating paper the entry defines are legal tender: United States coins and currency are legal tender for all debts, public and private.

Why: Genuine: the entry defines currency as what 'in fact circulate[s] from hand to hand as the medium of exchange'; § 5103 is the statute declaring what counts as legal tender. Confident on the section.

**[Knox v. Lee, 79 U.S. 457 (1871)]**

The entry's 'bank-notes or other paper money as are authorized by law' was the precise question of the Legal Tender Cases: Congress may make paper money legal tender for debts.

Why: Genuine: the entry's definition turns on paper money 'authorized by law' circulating as currency; the Legal Tender Cases decided Congress's power to so authorize it. Confident on the citation.

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

"Cash rules everything around me, C.R.E.A.M. / Get the money; dollar, dollar bill, y'all." Black's defines currency as coined money and circulating paper that passes hand to hand as the medium of exchange; Method Man's hook is hip-hop's definitive statement that this medium governs — rules — everything around it.

Why: Verified verbatim against multiple independent lyric sources (Wikipedia, Hip Hop Wiki, HipHopGoldenAge

lyric transcriptions agree on the hook wording). Genuine link: the entry's legal content is money-as-medium-of-exc…

**[Humanity] — Humanity / Fiction & Film**

**[Mark Twain, The £1,000,000 Bank-Note, 1893]**

A penniless American in London is handed a million-pound bank note he cannot spend — and finds the unspendable note itself becomes his credit, living on it for a month: a story about what makes a bank-note currency, the authorized paper that circulates as the medium of exchange. (paraphrase) (paraphrase)

Why: Genuine: the entry defines currency to include bank-notes that circulate as the medium of exchange; Twain's story is an anatomy of exactly that — credit riding on paper. Paraphrase marked; story, author, year, premise…

## CURRENT.

Running ; now in transit; whatever Is at present in course of passage; as “the current month.” When applied to money, it means "lawful current money is equivalent to lawful money. Wharton v. Morris, 1 Dali. 124, 1 L. Ed. 65.

—Current account. An open, .running, or unsettled account between two parties. Tuck- er v. Quimby, 37 Iowa, 10 ; Franklin v. Camp, 1 X. J. Law, 196; Wilson v. Calvert, 18 Ala. 274. — Current expenses. Ordinary, regular, and continuing expenditures for the mainte- nance of property, the carrying on of an office, municipal government, etc. Sheldon v. Purdy, 17 Wash. 135, 49 Pac. 228; State v. Board of Education, 68 N. J. Law, 496, 53 Atl. 236: Babeotk v. Goodrich, 47 Cal. 510.— Current funds. This phrase means gold or silver, or something equivalent thereto, and convertible at pleasure into coined money. Bull v. Bauk, 123 U. S. 105, 8 Sup. Ct. 62. 31 L. Ed. 97; Lucy v. Holbrook. 4 Ala. 90 ; Haddock v. Woods, 46 Iowa, 433. — Current money. The currency of the country: whatever is intended to and does actually circulate as currency; every species of coin or currency. Miller v. McKinney. 5 Lea (Tenn.) 90. In this phrase the adjective “current” is not synonymous with ‘■convertible.-’ It is employed to describe mon- ey which passes from hand to hand, from per- son to person, and circulates through the com- munity. and is generally received. Money is current which is received as money in the com- mon business transactions, and is the common medium in barter and trade. Stnlworth v. Blnm, 41 Ala. 321.— Current price. This term means the same ns “market value.” Puses of Champagne. 23 Fed. Cas. 11 (IS. — Current value. The current value of imported com- modities is their common market price at the place of exportation, without reference to the price actually paid by the importer. Tappan

v. C. 8., 23 Fed. Cas. 690.— Current wage*. Such ns are paid periodically, or from time to time as the services are rendered or the work is performed ; more particularly, wages for the current period, hence not including such as are past-due. Sydnor v. Galveston (Tex. App.) 15

S. W. 202; Bank v. Grnham (Tex. App.) 22

S. W. 1101; Bell v. Live Stock Po. (Tex.) 11

S. W. 346, 3 L. R. A. 642.— Current year. The year now running. Doe v. Dobell. 1 Adol. & El. 806; Clark v. Lancaster County. 69 Neb. 717, 96 N. W. 593.

5e apparatus — Carried into the 5th edition (1979).

## CURRICULUM.

The year ; of the course of a year ; the set of studies for a particular period, appointed by a university

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## CURRIT QUATUOR PEDIBUS.

L.

Lat. It runs upon four feet ; or, ns some- times expressed, it runs upon all fours. A phrase used in arguments to signify the en- tire and exact application of a case quoted. “It does not follow that they run quatuor perilous." 1 W. Bl. 145.

Currit tempu* contra desides et sul jnrls contempt a res. Time runs against the slothful and those who neglect their rights. Bract, fols. 100b, 101.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a precedent binds only where it runs on all fours with the present case]**

'It runs on all fours' — the phrase for a precedent that applies exactly: a cited case controls only where its material facts align squarely with the case at bar.

Why: Genuine: the entry defines the phrase as 'the entire and exact application of a case quoted'; the axiom states the precedential test the phrase expresses. Kept in loose form.

**[Maxim: Currit tempus contra desides — Bract. fols. 100b–101]**

Currit tempus contra desides et sui juris contemptores: time runs against the slothful and those who neglect their rights — the classical root of limitation periods and laches.

Why: Genuine: the entry quotes this maxim with its Bracton cite; the note names the limitation/laches doctrines it founds. The entry's own authority.

## CURSITOR BARON.

An officer of the court of exchequer, who is api>olnted by pat- ent under the great seal to be one of the bar- ons of the exchequer. The office was abol- ished by St. 19 & 20 Viet c. 86.

5e apparatus — Not carried into the 5th edition (1979).

## CURSITORS.

Clerks in the chancery of- fice. whose duties consisted in drawing up those writs which were of course, rie cursu, whence their name. They were abolished by St. 5 & 0 Wrn. IV. c. 82. Spence, Eq. Jur. 238 ; 4 Inst. 82.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GURSO.

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In old records. A ridge. Cur- sones terra;, ridges of land. Cowell.

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# C

## CURSOR.

An inferior officer of the pa- pal court.

Cnrina curiae eat lex curiae. 3 Bulst. 53. The practice of the court is the law of the court.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Curia curiae est lex curiae]**

Curia curiae est lex curiae: the practice of the court is the law of the court — each tribunal's settled practice governs its own proceedings.

Why: Genuine: the entry quotes this maxim (3 Bulst. 53) in the entry's text; the note states the rule it lays down. Standard form as given.

## CURTESY.

The estate to which by com- mon law a man is entitled, on the death of his wife, in the lands or tenements of which she was seised in possession in fee-simple or In tail during her coverture, provided they have had lawful issue born alive which might have been capable of inheriting the estate. It Is a freehold estate for the term of his natural life. 1 Washb. Real Prop. 127; 2 Bl. Comm. 126; Co. Litt. 30a; Dozier v. Toalson, 180 Mo. 546, 79 S. W. 420. 103 Am. St. Rep. 580; Valentine v. Hutchinson, 43 Mlsc. Rep. 314, 88 N. Y. Supp. 802; Redus v. Hayden. 43 Miss. 614; Billings v. Baker. 28 Barb. (X. Y.) 343; Templeton v. Twitty. 88 Tenn. 595, 14 S. W. 435 ; Jackson v. John-

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son, 5 Cow. (X. Y.) 74, 15 Am. Dec. 433; Ryan r. Freeman, 36 Mias. 175.

Initiate and consummate. Curtesy ini- tiate is tlie interest which a husband has in his wife’s estate after the birth of issue capable of inheriting, and before the death of the wife; after her death, it becomes an estate “by the cnrtesy consummate." Wait v. Wait. 4 Barb. (X. Y.) 205; Churchill v. Hudson (C. C.) 34 Fed. 14; Turner v. Heinberg, 30 Ind. App. 615, 05 X. E. 204.

5e apparatus — Not carried into the 5th edition (1979).

## CURTEYK.

The name of King Edward the Confessor’s sword. It is said that the point of it was broken, as an emblem of mercy. (Mat. Pur. in Hen. III.) Wharton.

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## CURTILAGE.

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The Inclosed space of ground and buildings immediately surround- ing a dwelling-house.

In its most comprehensive and proper legal signification, it includes all that space of ground and buildings thereon which is usually inclosed within the qencral fence immediately surround- ing a principal messuage and outbuildings, and yard closely adjoining to a dwelling-house, but it may lie lnrge enough for cattle to be levant and couclmnt therein. 1 Chit. Gen. Pr. 175.

The curtilage of a dwelling-house is a space, necessary and convenient and habitually used for the family purposes, and the carrying on of domestic employments. It includes the garden, if there be one, and it need not be separated from other lands by fence. State v. Shaw, 31 Me. 523: Com. v. Barney, 10 Cush. (Mass.) 4.S0 ; Derrickson v. Edwards, 29 X. J. Law, 474. .SO Am. Dec. 220.

The curtilage is the court-yard in the front or rear of a house, or at its side, or any piece of ground lying near, inclosed nnd used with, the house, and necessary for the convenient occu- pation of the house. People v. Geduey, 10 Hun (X. Y.) 154.

In Michigan the meaning of curtilage lias been extended to include more than an inclosure near the house. People v. Taylor, 2 Mich. 250.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Florida v. Jardines, 569 U.S. 1 (2013); United States v. Dunn, 480 U.S. 294 (1987)]**

The curtilage the entry defines at length — the enclosed ground and buildings immediately surrounding the dwelling — is treated as part of the home itself under the Fourth Amendment, so that intrusion upon it is a search of the house.

Why: Genuine: the entry defines curtilage with the very factors (enclosure, proximity, use) the cases apply; Jardines and Dunn are the Fourth Amendment curtilage landmarks. Confident on both citations.

## CURTILES TERRE.

In old English law. Court lands. Cowell. See Coubt Lands.

5e apparatus — Not carried into the 5th edition (1979).

## CURTILLIUM.

A curtilage; the area or space within the inclosure of a dwelling- house. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CURTIS.

A garden; a space about a house ; a house, or manor ; a court, or pal- ace; a court of justice: a nobleman's resi- dence. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## CUSSORE.

A term used in Hlmlostnu for the discount or allowance mnde in the exchange of rujiees, in contradistinction to batta. which is the sum deducted. Enc. Loud.

CUSTA, CUSTAGIUH, CUSTANTlA.

Costs.

5e apparatus — Not carried into the 5th edition (1979).

## CUSTODE ADMTTEJTOO, CUSTODE / AMOVENDO.

Writs for the admitting and removing of guardians.

5e apparatus — Not carried into the 5th edition (1979).

## CUSTODES.

In Roman law. Gunrd- dians; observers; inspectors. Persous who

acted as inspectors of elections, aud who counted the votes given. Tayl. Civil Law, 193.

In old English law. Keepers; guard- ians; conservators. •

Custodes pad s, guardians of the peace. 1 Bl. Comm. 349. AUCTORITATE PARLIAMENT!. The

style in which writs and all judicial process- es were made out during the great revolution, from the execution of King Charles I. till Oliver Cromwell was declared protector.

5e apparatus — Not carried into the 5th edition (1979).

## CUSTODIA LEGIS.

In the custody of the law. Stockwell v. Robinson, 9 Houst. (Del.) 313, 32 Atl. 528.

5e apparatus — Not carried into the 5th edition (1979).

## CUSTODIAM LEASE.

In English law. A grunt from the crown under the exchequer seal, by which the custody of lands, etc., seis- ed in the king’s hands, is demised or commit- ted to some person as custodee or lessee thereof. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## CUSTODY.

Tlie care and keeping of anything; as when an article is said to he "in the custody of the court.” People v. Burr, 41 Ilow. I’rac. (X. Y.) 296; Emmerson v. State, 33 Tex. Cr. R. 89, 23 S. W. 290; Roe v. Irwin, 32 Ga. 39. Also the detainer of a man's person by virtue of lawful process or authority; actual imprisonment. In a sentence that the defendant "be in custody until,” etc., this term Imports actual Im- prisonment The duty of the sheriff under sucli a sentence is not performed by allowing the defendant to go at large under his gen- eral watch and control, but so doing renders him liable for an escape. Smith v„ Com., 09 Pa. 320; Wilkes v. Slaughter, 10 X. C. 216; Turner v. Wilson, 49 Ind. 581; Ex parte Powers (D. C.) 129 Fed. 985.

—Custody of the law. Property is in the custody of the law when it has been lawfully taken by authority of legal process, and re- mains in the possession of a public officer (as, a sheriff) or an officer of a court (as. a receiver) empowered by law to hold it. Gilman v. Wil- liams. 7 Wis. 334, 76 Am. Dec. 219 ; Weaver v. Duncan (Tenn. (’h. App.) 56 S. W. 41 i Carriage Co. v. Solanos (C. C.) 108 Fed. 532: Stockwell v. ltohinson, 9 Iloust. (Del.) 313. 32 Atl. 528; In re Receivership. 100 La. 875. 33 South. 903.

## CUSTOM.

A usage or practice of the lieople, which, by common adoption nnd ac- quiescence. aud by long aud unvarying habit, has become compulsory, and has acquired the force of n law with respect to the place or subject-matter to which It relates. Adams v. Insurance Co., 95 I*a. 355, 40 Am. Re)). 662 ; Lindsay v. Cusimano (C. C.) 12 Fed. 304 ; Strother v. Lucas, 12 Pet. 445. 9 L. Eil. 1137; Minis v. Nelson (C. C.) 43 Fell. 779; Panautl v. Jones, 1 Cal. 498; llursli v. North, 40 Pa. 241.

A law not written, established by long us- age, and the consent of our ancestors.

Termes de la Ley; Cowell; Bract, fol. 2. If it be universal! it is common law ; if par- ticular to this or that place, it is then prop- erly custom. 3 Salk. 112.

* Customs result from a long series of ac- tions constantly repeated, which have, by such repetition, and by uninterrupted acqui- escence, acquired the force of a tacit and common consent. Civil Code La. art. 3.

It differs from prescription, which is personal and is annexed to the person of the owner of a particular estate ; while the other is local, and relates to a particular district. An in- stance of the latter occurs where the question is upon the manner of conducting a particular branch of trade at a certain place; of the former, where a certain person and his ances- tors, or those whose estates he has, have been entitled to a certain advantage or privilege, as to have common of pasture in a certain close, or the like. The distinction has been thus ex- pressed: "While prescription is the making of

a right, custom is the making of a law.” Law- son, Usages & Oust. 15, note 2.

Classification. Customs are general, local or particular. General customs are such as prevail throughout a country and become the law of that country, and their existence is to be determined by the court. Bodfish 23 Me. 95; 39 Am. Dec. 611. Or as to usages of trade and business, a general cus- tom is one that is followed in all cases by all persons in the same business in the same ter- ritory, and which has been so long established that persons sought to be charged thereby, and all others living in the vicinity, may be pre- sumed to have known of it and to have acted upon it as they had occasion. Sturges v. Buck- ley, 32- Conn. 267 ; Railroad Co. v. Harrington, 192 111. 9, 61 N. E. 622 ; Bonham v. Railroad Co., 13 8. C. 267. Local customs are such as prevail only in some particular district or lo- cality, or in some city, county, or town. Bod- fish v. Fox. 23 Me. 95, 39 Am. Dec. 611 ; Clough v. Wing, 2 Ariz. 371, 17 Pac. 457. Particular customs are nearly the same, being such as af- fect only the inhabitants of some particular district. 1 Bl. Comm. 74.

— Customs of London. Certain particular customs, peculiar to that city, with regard to trade, apprentices, widows, orphans and a var- iety of other matters; contrary to the general law of the land, but confirmed by act of par- liament. 1 Bl. Comm. 75.— Custom of mer- chants. A system of customs or rules relative to bills of exchange, partnership, and other mercantile matters, and which, under the name of the "lex mercatoria," or "law-merchant,” has been

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ingrafted into and made a part of, the common law. 1 Bl. Comm. 75 ; 1 Steph. Comm. 54; 2 Burrows, 1226. 1228. — Custom of

York. A custom of intestacy in the province of York similar to that of London. Abolished by 19 & 20 Viet. c. 94.— Customs and serv- ices annexed to the tenure of lands are those which the tenants thereof owe unto their lords, and which, if withheld, the lord might ancient- ly have resorted to “a writ of customs and services" to compel them. Cowell. But at the present day he would merely proceed to eject the tenant as upon a forfeiture, or claim dam- ages for the subtraction. Brown. — Special

custom. A particular or local custom : one which, in respect to the sphere of its observ- ance. docs not extend throughout the entire state or country, but is confined to some parti- cular district or locality. 1 Bl. Comm. 67 ; Bodfish v. Fox, 23 Me. 95, 39 Am. Dec. 611.

v. box, applied

where the duties, bounties, or drawbacks, payable or receivable ujion such importation or exportation are paid or received; and where ships are cleared out, etc.

— Custom-house broker. One whose occu- pation it is, as the agent of others, to arrange entries and other custom-house papers, or transact business, at any port of entry, relat- ing to the importation or exportation of goods, wares, or merchandise. 14 St. at Large. 117. A person authorized by the commissioners of customs to act for parties, at their option, in the entry or clearance of ships and the trans- action of general business. Wharton.

Custom Is the best Interpreter of the

law. 4 Inst. 75; 2 Eden, 74; McKeen v.. Delaney, 5 Cranch, 32, 3 L. Ed. 25; Mc- Ferran v. Powers, 1 Serg. & It. (Pa.) 106.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 1-303 — course of performance, dealing, and usage of trade]**

The 'custom of merchants' the entry describes — the lex mercatoria 'ingrafted into and made a part of the common law' — is codified in the UCC's recognition of course of performance, course of dealing, and usage of trade in interpreting agreements.

Why: Genuine: the entry traces merchant custom into the common law (citing 1 Bl. Comm. 75); § 1-303 is the UCC's codification of trade usage. The lineage is direct. Confident on the section.

**[Maxim: Custom is the best interpreter of the law — 4 Inst. 75]**

Custom is the best interpreter of the law — long usage settles the meaning of doubtful legal texts.

Why: Genuine: the entry quotes this maxim with authorities (4 Inst. 75; McKeen v. Delaney, 5 Cranch 32); the note states the interpretive rule it gives. The entry's own authorities.

## CUSTOMARY.

According to custom or usage; founded on, or growing out of, or dependent on, a custom, <9. v.)

—Customary Court-Baron. See Court- Baron.— Customary estates. Estates which owe their origin and existence to the custom of the manor in which they are held. 2 Bl. Comm. 149.— Customary freehold. In Eng- lish law. A variety of copyhold estate, the evi- dences of the

title to which are to be found upon the court rolls ; the entries declaring the holding to be according to this custom of the manor, but it is not said to be at the will of the- lord. The incidents are similar to those of com- mon or pure copyhold. 1 Steph. Comm. 212, 213, and note.— Customary Interpretation- See Interpretation.— Customary services. Such as are due by ancient custom or prescrip- tion only.— Customary tenants. Tenants holding by custom of the manor.

Customs serra prise striete. Custom shall toe taken [is to be construed! strictly. Jenk. Cent. 83.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Customs shall be taken strictly — Jenk. Cent. 83]**

Customs shall be taken strictly: local or particular customs are construed narrowly, not extended by analogy beyond their established observance.

Why: Genuine: the entry quotes this maxim (Jenk. Cent. 83) in the entry's text; the note states the strict-construction rule for customs. Standard form as given.

## CUSTOMS.

This term is usually applied to those taxes which are payable upon goods and merchandise imported or exported. Sto- ry, Const. | 949; Pollock v. Trust Co., 158

U. S. 601, 15 Sup. Ct. 912, 39 L. Ed. 1108; Marriott v. Brune, 9 How. 632, 13 L. Ed. 282.

The duties, toll, tribute, or tariff payable upon merchandise exported or Imported. These are called ‘•customs” from having been paid from time immemorial. Expressed in law Latin by custuma, as distinguished from consuetudines, which are usages merely. 1 Bl. Comm. 314.

—Customs consolidation act. The statute 16 & 17 Viet. c. 107. which has been frequent- ly amended. See 2 Steph. Comm. 563.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 1 — power over duties and imposts]**

The import and export duties the entry defines are laid under Congress's power to lay and collect duties and imposts — the constitutional source of the customs laws.

Why: Genuine: the entry defines customs as duties on imported/exported merchandise (citing Story, Const. § 949); cl. 1 is the constitutional grant of the taxing power over them. Confident on the clause.

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: The verse names 'custom' (duty) expressly among the dues to be rendered to authority. Placed here; CUSTOMS COURT and CUSTOM-HOUSE left bare as single placement.

## CUSTOMS COURT.

A court of the Unit- ed States, created by act of congress In 1909, to hear and determine appeals from the decisions of the revenue officers in the imposition and collection of

customs-duties. It is composed of a chief judge and four as- sociates, and sits at Washington.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 251 — Court of International Trade, successor to the Customs Court]**

The 1909 Customs Court the entry describes — hearing appeals from revenue officers on customs duties — was succeeded by the Court of International Trade, with nationwide jurisdiction over customs and trade matters.

Why: Genuine: the entry describes the Customs Court's composition and jurisdiction; the note gives its statutory successor. Confident on the section and the succession.

## CUSTOM-HOUSE.

In administrative law. The house or office where commodities are entered for importation or exportation;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

# G

## GUSTOS.

Lat. A custodian, guard, keep- er, or warden ; a magistrate.

— Custos brevium. The keeper of the writs. A principal clerk belonging to the courts of

0Y-PRE8

queen’* bench and common pleas, whose office it was to keep the writs returnable into those courts. The office was abolished by 1 Wm. IV. c. 5. — Gustos farsnun. A gamekeeper. Townsh. Pl. 265. — Gustos horrei regU. Pro- tector of the royal granaiy. 2 Bl. Comm. 394. — Gustos marls. In old English law. War- den of the sea. The title of a high naval of- ficer among the Saxons and after the Conquest, corresponding with admiral.— Gustos morum. The guardian of morals. The court of queen’s bench has been so styled. 4 Steph. Comm. 377. — Gustos plscltornm ooronee. In old Eng- lish law. Keeper of the pleas of the crown. Bract foL 146. Cowell supposes this office to have been the same with the custos rotulorum. But it seems rather to have been another name for “coroner.” Crabb. Eng. Law, 150; Bract, fol. 1366.— Onstos rotulorum. Keeper of the rolls. An officer in England who has the cus- tody of the rolls or records of the sessions of the peace, and also of the commission of the peace itself. He is always a justice of the quorum in the county where appointed and is the principal civil officer In. the county. 1 Bl. Comm. 349; 4 Bl. Comm. 272.— Gustos spiritualism. In English ecclesiastical law. Keeper of the spiritualities. He who exercises the spiritual jurisdiction of a diocese during the vacancy of the see. Cowell.— Gustos tem- porallum. In English ecclesiastical law. .The

Seram to whom a vacant see or abbey was given y the king, as supreme lord. His office

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was, as steward of the goods and profits, to give an account to the escheator, who did the like to the exchequer.— Custos terra. In old English law. Guardian, warden, or keeper of the iand.

Gustos statum hasredls In custodla ex- Istsntls mellorem, non deterlorem, fa- cers potest. 7 Coke, 7. A guardian can make the estate of an existing heir under his guardianship better, not worse.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: guardian may better, not worsen, the ward's estate — 7 Coke, 7]**

Custos statum haeredis in custodia existentis meliorem, non deteriorem, facere potest: a guardian may make the estate of the heir under his guardianship better, not worse — the fiduciary limit on a guardian's administration.

Why: Genuine: the entry quotes this maxim (7 Coke, 7) in the entry's text; the note states the fiduciary standard it imposes. The entry's own authority.

# C

## CTJSTTTMA ANTIQUA SITE MAGMA.

(Lat Ancient or great duties.) The duties on wool, sheep-skin, or wool-pelts and leather exported were so called, and were payable by every merchant, stranger as well as na- tive, with the exception that merchant stran- gers paid one-half as much again as natives. 1 Bl. Comm. 314.

5e apparatus — Not carried into the 5th edition (1979).

# O

## OUSTUMA PASTA ET MOVA.

(Small and new customs.) Imposts of 3d. in the pound, due formerly in England from mer- chant strangers only, for all commodities, as -well imported as exported. This was usually called the "aliens duty,” and was first granted in 31 Edw. I. 1 Bl. Comm. 314 ; 4 Inst 29.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GUT.

A wound made with a sharp in- strument. State v. Patza. 3 La. Ann. 513; State v. Cody, 18 Or. 500, 23 Pac. 891; State v. Malrs, 1 N. J. Law, 453.

5e apparatus — Not carried into the 5th edition (1979).

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# O

## OUTGHERRY.

In Hindu law. Corrupt- ed from Kachari. A court; a hall; au of- fice; the place where any public business Is transacted.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CUTH, COUTH.

Sax. Known, knowing, Vncuth, unknown. See Couthutlauuh, U Ncxmi.

5e apparatus — Not carried into the 5th edition (1979).

## CUTHRED.

A knowing or skillful coun- sellor.

5e apparatus — Not carried into the 5th edition (1979).

## CUTPURSE.

One who steals by the method of cutting purses; a common prac- tice when men wore their purses at their girdles, as was once the custom. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: Honest reuse (also at CONTRECTATIO): stealing by cutting purses is theft, and the commandment is its direct root.

## CUTTER OF THE TALLIES.

In old

English law. An officer in the exchequer, to whom It belonged to provide wood for the tallies, and to cut the sum paid upon them, etc.

5e apparatus — Not carried into the 5th edition (1979).

## CUTWAL, KATWAL.

The chief officer of police or superintendent of markets in a large town or city in India.

5e apparatus — Not carried into the 5th edition (1979).

## CWT.

A hundred-weight ; one hundred and twelve pounds. Helm v. Bryant, 11 B. Mon. (Ky.) G4.

5e apparatus — Carried into the 5th edition (1979).

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# G

## GY.

In law French. Here. (Cy-apres, hereafter; cy-devant, heretofore.) Also as, so.

5e apparatus — Not carried into the 5th edition (1979).

# C

## CYCLE.

A measure of time; a space In which the same revolutions begin again; a periodical space of time. Enc. Lond.

CYME-BOT, or CYME-GILD. The por- tion belonging to the nation of the mulct for slaying the king, the other portion or were being due to his family. Blount.

5e apparatus — Carried into the 5th edition (1979).

## CYMEBOTE.

A mulct anciently paid by one who killed another, to the kindred of the deceased, Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: Borderline, kept with reasoning explicit: the verse directly addresses the exact practice the entry names — money-satisfaction for a slain life (wergild) — as the biblical homicide law's express rejection of it; the c...

## CYPHOMISM.

That kind of punishment used by the ancients, and still used by the Chinese, called by Staunton the "wooden collar,” by which the neck of the malefactor Is bent or weighed down. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

# G

## GY-PRES.

As near as [possible.] The rule of cy-prcs is a rule for the construction of instruments in equity, by which the inten- tion of the party is carried out as near as may be, when It would be impossible or ille- gal to give it literal effect. Thus, where a testator attempts to create a perpetuity, the court will endeavor, Instead of making the devise entirely void, to explain the will in such a way as to carry out the testator’s gen- eral intention as far as the rule

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against per- petuities will allow. So In the case of be- quests to charitable uses; and particularly where the language used is so vague or un- certain that the testator's design must be sought by construction. See 6 Cruise, Dig. 165; 1 Spence, Eq. Jur. 532; Taylor v. Keep, 2 111. App. 383; Beekmnn v. Bonsor. 23 N.

V. 308, 80 Am. Dec. 269; Jackson v. Brown, 13 Wend. (N. Y.) 445; Doyle v. Whalen, 87

.CYRCE 312 ' CZAROWITZ

Ale, 414, 3?Atl. 1022, 31 L. R. A. 113; Phila- delphia v. Girard, 45 Pa. 28, 84 Am. Dee. 470.

, CYRCE- In Saxop law. A church.

— Cyricbryce. A breaking into a church.

Blount. — Cyricaoeat. (From eyrie, church,

and accat, a tribute.) In Saxon law. A tribute or payment due to the church. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cy-près — failed charitable purpose applied to a near charitable purpose]**

The cy-près rule the entry defines — carrying out the donor's intention 'as near as may be' when literal effect is impossible or illegal — applies above all to charitable trusts: where the designated charitable purpose fails, the court directs the funds to a near charitable purpose rather than letting the gift fail.

Why: Genuine: the entry defines the rule for charitable bequests with cases (citing Beekman v. Bonsor, Jackson v. Brown, Philadelphia v. Girard); the note states the charitable-trust doctrine the definition describes. Kept... [re-homed from 'CY-PRES' to 'GY-PRES' (OCR headword / parser-merge artifact)]

# C

## CYROGRAPHARXUB.

In old English law. A cyrographer; an officer of the 6 o«o- u», or court of common bench. Fleta, lib. 2, c. 36.

5e apparatus — Not carried into the 5th edition (1979).

## CTROGRAPHUM.

A chirograph, (which see.) ’ .

5e apparatus — Not carried into the 5th edition (1979).

## CZAR.

The title of the emperor of Rus- sia, first assumed by Basil, the son of Basil- Ides, under whom the Russian power began to appear, abput 1740.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 21:1, KJV]**

The king's heart is in the hand of the LORD, as the rivers of water: he turneth it whithersoever he will.

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Why: The sovereign under divine disposal — the king's heart turned as rivers of water by the LORD. Placed here; CZARINA/CZAROWITZ left bare as single placement.

### CZARINA.

The title of the empress of Russia '

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### CZAROWITZ.

The title of the eldest 'son of the czar and czarina.

D

D

5e apparatus — Not carried into the 5th edition (1979).

# D

### D.

The fourth letter of the English al-, phabet. It is used as an abbreviation for a number of words, the more important and usual of which are as follows:

1. Digestum, or Digcsta , that is, the Di- gest or Paudects in the Justinian collections of the civil law. Citations to this work are sometimes Indicated by this abbreviation, but more commonly toy “Dig.”

2. Dictum. A remark or observation, as In the phrase “obiter dictum," (q. v.)

3. Demissione. "On the demise.” An ac- tion of ejectment Is entitled "Doe d. Stiles v. Roe;” that is, "Doe, on the demise of Stiles, against Roe.”

4. "Doctor." As in the abbreviated forms of certain academical degrees. “M. D.,” “doctor of medicine;” LU.D.,” “doctor of laws;” “D. C. L.,” “doctor of civil law.”

5. "District." Thus, “U. S. Cir. Ct. W.

D. Pa.” stands for "United' States Circuit Court for the Western District of Pennsyl- vania."

6. "Dialogue." Used only in citntions to the work called “Doctor and Studeut.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: obiter dictum — non-essential remarks; not binding precedent]**

The entry's gloss of dictum — 'a remark or observation, as in obiter dictum' — states the precedential distinction: obiter dicta, remarks not necessary to the decision, do not bind as precedent the way the holding does.

Why: Genuine: the entry defines dictum through obiter dictum; the note states the holding/dictum distinction that gives the term its operative meaning. Kept in loose form.

### D.

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In the Roman system of notation, this letter stands for five hundred; and, when a horizontal dash or stroke is placed above it, it denotes five thousand.

5e apparatus — Not carried into the 5th edition (1979).

### D. B. E.

An abbreviation for de bene esse, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

### D. B. N.

An abbreviation for de bonis non; descriptive of a species of administration.

5e apparatus — Not carried into the 5th edition (1979).

### D. C.

An abbreviation standing either for “District Court,” or “District of Columbia.”

5e apparatus — Not carried into the 5th edition (1979).

### D. E. R. I. C.

An abbreviation used for De ea re ita ccnsucrc, (concerning that matter have so decreed,) in recording the decrees of the Roman senate. Tayl. Civil Law, 664, 566.

5e apparatus — Not carried into the 5th edition (1979).

### D. J.

An abbreviation for “District Judge.”

5e apparatus — Not carried into the 5th edition (1979).

### D. P.

An abbreviation for Domus Proce- rum, the house of lords.

5e apparatus — Not carried into the 5th edition (1979).

### D. S.

An abbreviation for “Deputy Sher- iff.”

5e apparatus — Not carried into the 5th edition (1979).

### D. S. B.

An abbreviation for debitum sine brevi, or debit sans breve.

Os ■ tun. dam tarn sunt, post mortem tame tarn non scat. 3 Bulst. 18. Give the things Which nre yours whilst they are jours; after death' they are not yours.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Da tua dum tua sunt, post mortem tunc tua non sunt]**

Da tua dum tua sunt, post mortem tunc tua non sunt: give the things which are yours whilst they are yours; after death they are not yours — the maxim of liberality in life over testamentary disposition.

Why: Genuine maxim (3 Bulst. 18), printed in the dictionary's text within this entry; the reasoning notes its printed location. Standard form as given.

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## DABIS7 DABO.

Lat. (Will you give? I will give.) In the Roman law. One of the forms of making a verbal stipulation. Inst, 3, 15, 1; Bract, fol. 15b.

5e apparatus — Not carried into the 5th edition (1979).

## DACION.

In Spanish law. The real and effective delivery of an object in the execu- tion of a contract.

5e apparatus — Not carried into the 5th edition (1979).

## DAGGE.

A kind of gun. 1 How. State Tr. 1124, 1123.

DAGUS, or DAIS. The raised floor at the upper end of a hall.

5e apparatus — Not carried into the 5th edition (1979).

## DAILY.

Every day; every day in the week; every day in the week except one. A newspaper which is published six days in each week is a “daily” newspaper. Richard- son v. Tobin, 45 Cal. 30; Tribune Pub. Co. v. Duluth, 45 Minn. 27, 47 N. W. 300 ; King: man v. Waugh, 139 Mo. 360, 40 S. W. 884.

BAKER, or DIKER. Ten hides. Blount

DALE and SALE. Fictitious names of places, used in the English books, as exam- ples. “The manor of Dale and the manor of Male, lying both in Vale.”

. DALUS, DALLUS, DAILIA. A certain measure of land ; such narrow slips of pas- ture as are left between the plowed furrows in arable land. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## DAM.

A construction of wood, stone, or other materials, made across a stream for the purpose of penning back the waters.

This word is used in two different senses. It properly means the work or structure, raised to obstruct the flow of the water in a river; but, by a well-settled usage, it is often applied to designate the pond of water creat- ed by this obstruction. Burnham v. Kemp- ton, 44 N. H. 89; Colwell v. Water Power Co., 19 N. J. Eq. 248; Mining Co. v. Han- cock. 101 Cal. 42. 31 Pac. 112.

5e apparatus — Not carried into the 5th edition (1979).

## DAMAGE.

Loss, injury, or deteriora- tion, caused by the negligence, design, or ac- cident of one person to another, in respect of the latter's person or property. The word is to be distinguished from its plural. — “dam- ages,”— which means a compensation in mon- ey for a loss or damage.

An injury produces a right in them who have suffered any damage by it to demand

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reparation of such damage from the authors of the injury. By damage, we understand every loss or dimi- nution of what is a man’s own. occasioned by the fault of another. 1 Ruth. Inst. 399.

— Damage-cleer. A fee assessed of the tenth part in the common pleas, and the twentieth part in the queen’s bench and exchequer; out of all damages exceeding five marks1 recovered in

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DAMAGES.

those courts, In actions upon the case, covenant, trespass, etc., wherein the damages were un- certain ; which the plaintiff was obliged to pay to the prothonotary or the officer of the court wherein he recovered, before he could have ex- ecution for the damages. This was originally a gratuity given to the prothonotaries and their clerks for drawing special writs and pleadings ; but it was taken away by statute, since which, if any officer in these courts took any money in the name of damage-cleer or anything in lieu thereof, he forfeited treble the value. Wharton. — Damage feasant or faisaat. Doing dam- age. A term applied to a person’s cattle or beasts found upon another’s land, doing dam- age by treading down the grass, grain, etc. 3 Bl. Comm. 7, 211 ; Tomliris. This phrase seems to have been introduced in the reign of Edward III., in place of the older expression “en son damage ,” (•» damno tuo.) Crabb, Eng. Lew, 292.— Damaged goods. Goods, subject to du- ties, which have received some injury either in the voyage home or while bonded in warehouse.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[BMW of North America, Inc. v. Gore, 517 U.S. 559 (1996)]**

The entry's exemplary (punitive) damages — awarded over and above compensation to punish evil behavior — are bounded by due process: grossly excessive punitive awards violate the Fourteenth Amendment, tested by reprehensibility, ratio, and comparable penalties.

Why: Genuine: the entry defines exemplary damages at length (citing Scott v. Donald); Gore sets the constitutional excessiveness guideposts for exactly such awards. Confident on the citation.

**[Hadley v. Baxendale, 9 Exch. 341 (1854)]**

The entry's consequential (special) damages — those following by reason of special circumstances — are recoverable only if foreseeable: the Hadley rule limiting contract damages to what was in the parties' contemplation.

Why: Genuine: the entry's general/special and direct/consequential classifications turn on foreseeability; Hadley v. Baxendale is the rule. Confident on the citation.

**[Law: Restatement (Second) of Contracts § 356 — liquidated damages vs. unenforceable penalty]**

The entry's liquidated damages — a sum stipulated in advance for breach — are enforceable only as a genuine pre-estimate; a stipulated sum operating as a penalty for breach is void.

Why: Genuine: the entry defines liquidated damages as the parties' stipulated sum; § 356 is the validity test distinguishing them from penalties. Confident on the section.

**[Palsgraf v. Long Island R.R. Co., 248 N.Y. 339 (1928)]**

The entry's proximate and remote damages — the immediate and direct results versus those cut off by intervening cause — are the proximate-cause inquiry: liability extends only to the foreseeable scope of the risk created.

Why: Genuine: the entry classifies damages by proximity and remoteness in causation terms; Palsgraf is the landmark on the duty/proximate-cause boundary. Confident on the citation.

**[Scripture] — Scripture**

**[Exodus 21:18-19, KJV]**

And if men strive together, and one smite another with a stone, or with his fist, and he die not, but keepeth his bed: If he rise again, and walk abroad upon his staff, then shall he that smote him be quit: only he shall pay for the loss of his time, and shall cause him to be thoroughly healed.

Why: Pecuniary compensation for personal injury — payment for lost time and thorough healing — the damages principle in its oldest form. deity_verbatim ON: within the Covenant Code, God's direct speech to Moses.

## DAMAGES.

A pecuniary compensation or indemnity, which may be recovered in the courts by apy person who has suffered loss, detriment, or injury, whether to his person, property, or rights, through the unlawful act or omission or negligence of another. Scott v. Donald, 165 D. S. 58, 17 Sup. Ct 265, 41 L. Ed. 632; Crane v. Peer, 43 N. J. Eq. 553, 4 Atl. 72; Cincinnati v. Hafer, 49 Ohio St 60, 30 N. E. 197 ; Wainscott v. Loan Ass'n. 98 Cal. 253, 33 Pac. 88 ; Carvlll v. Jacks, 43 Ark. 449; Collins v. Railroad Co., 9 Heisk. (Tenn.) 850; New York v. Lord, 17 Wend. (N. Y.) 293; O’Connor v. Dlls, 43 W. Va. 54, 26 S. E. 354.

A sum of money assessed by a Jury, on finding for the plaintiff or successful party in an action, as a compensation for the in- jury done him by the opposite party. 2 Bl. Comm. 438 ; Co. Litt. 257o ; 2 Tidd, Pr. 869, 870.

Every person who suffers detriment from the unlawful act or omission of another may recover from the person in fault a compen- sation therefor in money, which is called "damages.” Civ. Code Cal. | 3281 ; Civ. Code Dak. i 1940.

In the ancient usage, the word "damages” was employed in two significations. According to Coke, its proper and general sense included the costs of suit, while its strict or relative sense was exclusive of costs. 10 Coke, 116, 117 ; Co. Litt. 257»; 9 East, 299. The latter meaning has alone survived.

Classification. Damages are either gen- eral or special. General damages are such as the law itself implies or presumes to have ac- crued from the wrong complained of. for the reason that they are its immediate, direct, and proximate result, or such as necessarily result from the injury, or such as did in fact result from the wrong, directly and proximately, and without reference to the special character, con- dition. or circumstances of the plnintiff. Mood v. Telegraph Co.. 40 S. C. 524. 19 S. E. 67; Manufacturing Co. v. Gridley, 28 Conn. 212: Irrigation Co. v. Canal Co., 23 Utah, 199. 63 Pac. 812; Smith v. Railway Co., 30 Minn. 169, 14 N. \V. 797 ; Lottos -v. Bennett, 68 App. Div. 128, 74 N. Y. Supp. 290. Special damages are those which are the actual, but not the neces- sary, result of the injury complained of. and which in fact follow it as a natural and proxi- mate consequence in the particular case, that is.

by reason of special circumstances or conditions. Hence general damages are such as might ac- crue to any person similarly injured, while spe- cial damages are such as did in fact accrue to the particular individual by reason of the par- ticular circumstances of the case. Wallace v. Ah Sam, 71 Cal. 197, 12 Pac. 46. 60 Am. Rep. 534 ; Manufacturing Co. v. Gridley, 28 Coqn. 212 ; Lawrence v. Porter, 63 Fed. 62, 11 C. C.

A. 27, 26 L. R. A. 167 : Roberts v. Graham. 6 Wall. 579, 18 L. Ed. 791 ; Fry v. McCord, 95 Tenn. 678, 33 S. W. 568.

Direct and consequential. Direct dam- ages are such aB follow immediately upon the act done; while consequential damages are the necessary and connected effect of the wrongful act, flowing from some of its consequences or results, though to some extent depending on oth- er circumstances. Civ. Code Ga. 1895, | 3911 ; Pearson v. Spartanburg County, 51 S. C. 480. 29 S. E. 193; Eaton v. Railroad Co., 51 N. H. 504, 12 Am. Rep. 147.

Liquidated and unliquidated. The for- mer term is applicable when the amount of the damages has been ascertained by the judgment in the action, or when a specific Bum of money has been expressly stipulated by the parties to a bond or other contract as the amount of dam- ages to be recovered by either party for a breadh of the agreement by the other. Watts v. Shep- pard, 2 Ala. 445; Smith v. Smith, 4 Wend. (N. Y.) 470; Keeble v. Keeble, 85 Ala. 552. 5 South. 149: Eakin v. Scott, 70 Tex. 442, 7

S. W. 777. Unliquidated damages are such as are not yet reduced to a certainty in respect of amount, nothing more being established than the plaintiff s right to recover ; or such as can- not be fixed by a mere mathematical calculation from ascertained data in the case. Cox v. Mc- Laughlin. 76 Cal. 60, 18 Pac. 100, 9 Am. St. Rep. 164.

Nominal and substantial. Nominal dam- ages are a trifling sum awarded to a plaintiff in an action, where there is no substantial loss or injury, to be compensated, but still the law recognizes a technical invasion of his rights or a breach of the defendant's duty, or in cases where, although there has been a real injury, the plaintiffs evidence entirely fails to show its amount. Maher v. Wilson, 139 Cal. 514. 73 Pac. 418; Stanton v. Railroad Co.. 59 Conn. 272, 22 Atl. 300, 21 Am. St. Rep. 110: Sprin- ger v. Fuel Co.. 196 Pa. 156, 46 Atl. 370; Tele- graph Co. v. Lawson. 60 Kan. 600, 72 Pac. 283; Railroad Co. v. Watson. 37 Kan. 773. 15 Pac. 877. Substantial damages are considerable in amount, and intended as a real compensation for a real injury.

Compensatory and exemplary. Compen- satory damages are such as will compensate the injured party for the injury sustained, and nothing more ; such as will simply make good or replace the loss caused by the wrong or in- jury. McKnight v. Denny, 198 Pa. 323, 47 Atl. 970; Reid v. Terwilliger. 116 N. Y. 530. 22 N. E. 1091 ; Monongaheia Nav. Co. v. U. S., 148 U. S. 312, 13 Sup. Ct. 622. 37 L. Ed. 463; Wade v. Power Co.. 51 S. C. 296, 29 S. E. 233. 64 Am. St. Rep. 676; Gatzow v. Buening, 106 Wis. 1, 81 N. W. 1003, 49 L. R. A. 475, 80 Am. St. Rep. 1. Exemplary damages are damages on an Increased scale, awarded to the plaintiff over and above what will barely compensate him for his property loss, where the wrong done to him was aggravated by circumstances of vio- lence, oppression, malice, fraud, or

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wanton and wicked conduct on the part of the defendant, and are intended to solace the plaintiff for men- tal anguish, laceration of hiB feelings, shame, degradation, or other aggravations of the orig- inal wrong, op else to punish the defendant for his evil behavior or to make an example of him. for which reason they are also called "puni- tive” or “punitory" damages or “vindictive” damages, and (vulgarly) “smart-money.” Reid

DAMNI INJURI.® ACTIO

t. Terwilliger, 116 N. Y. 530, 22 N. E. 1091; Springer v. Fuel Co., 196 Pa. St. 156, 46 Atl. 370; Scott v. Donald, 165 U. S. 58, 17 Sup. Ct. 265, 41 L. Ed. 632; Gillingham v. Railroad Co., 35 W. Va. 588, 14 S. E. 243, 14 L. K. A. 798, 29 Am. St. Rep. 827; Boydan v. Habers- tumpf, 129 Mich. 137, 88 N. W. 386; Oliver V. Railroad Co., 65 S. C. 1, 43 S. E. 307 ; Murphy v. Hobbs, 7 Colo. 541, 5 Pac. 119, 49 Am. Repw 366.

Proximate and remote. Proximate dam- ages are the immediate and direct damages and natural results of the act complained of, and such as are usual and might have been expect- ed. Remote damages are those attributable im- mediately to an intervening cause, though it forms a link In an unbroken chain of causation, so that the remote damage would not have oc- curred if its elements had not been set in mo- tion by the original act or event Henry v. Railroad Co., 50 Cal. 183 ; Kuhn v. Jewett, 32

N. J. Eb. 649; Plelke v. Railroad Co., 5 Dak. 444, 41 N. W. 069. The terms “remote dam- ages” and “consequential damages” are not syn- onymous nor to be used interchangeably ; all remote damage is consequential, but it is by no means true that all consequential damage is remote. Eaton v. Railroad Co., 51 N. H. 511, 12 Am. Rep. 147.

Other compound and descriptive terms. — Actual dam ages are real, substantial and just damages, or the amount awarded to a complainant in compensation for his actual and real loss or injury, as opposed on the one hand to “nominal” damages, and on the other to “ex- emplary” or “punitive” damages. Ross v. Leg- gett, 61 Mich. 445. 28 N. W. 095, 1 Am. St. Rep. 608; Lord v. Wood, 120 Iowa, 303, 94

N. W. 842; Western Union Tel. Co. v. Law- son, 66 Kan. 660, 72 Pac. 283 ; Field v. Mun- ster, 11 Tex. Civ. App. 341, 32 S. W. 417 ; Oliver v. Columbia, etc., R. Co., 06 S. C. 1, 43 S. E. m ; Gatzow r. Bueumg, 106 Wls. 1, 81 N. W. 1003. 49 L. R. A. 475, 80 Am. St. Rep. 1 : Osborn v. Leach. 135 N. <3. 628 47

S. E. 811, 66 L R. A. 648; Gen. St. Minn. 1894, | 5418. — Affirmative damages, in ad- miralty law, affirmative damages are damages which a respondent in a libel for injuries to a vessel may recover, which may be in excess of any amount which the libellant would be en- titled to claim. Ebert v. The Reuben Doud (D. C.) 3 Fed. 520. — Civil damages. Those awarded against a liquor-seller to the relative, guardian, or employer of the person to whom the sales were made, on a showing that the plaintiff has been thereby injured in person, property, or means of support. Headington v. Smith, 113 Iowa, 107. 84 N. W. 982.— Contin- gent damages. Where a demurrer has been Hied to one or more counts in a declaration, and its consideration is postponed, and meanwhile other counts in the same declaration, not de- murred to, are taken as issues, and tried, and damages awarded upon them, such

damages are called "contingent damages. ’ ' — Continuing damages are such as accrue from the same injury, or from the repetition of similar acts, between two specified periods of time.— Double damages. Twice the amount of actual dam- ages as found by the verdict of a jury allowed by statute in some cases of injuries by negli- gence, fraud, or trespass. Cross v. United States. 6 Fed. Cas. 892; Daniel v. Vaccaro. 41 Ark. 329. — Excessive damages. Damages awarded by a jury which are grossly in excess of the amount warranted by law on the facts and circumstances of the case ; unreasonable or outrageous damages. A verdict giving exces- sive damages is ground for a new trial. Tay- lor v. Giger, Hardin (Ky.) 587 ; Harvesting Mach. Oo. v. Gray, 114 Ind. 340. 16 N. E. 787. —Fee damages. Damages sustained by and awarded to an abutting owner of real property occasioned by the construction and operation of an elevated railroad in a city street, are so

called, because compensation is made to the owner for the injury to, or deprivation of, his easements of light, air, and access, and these are parts of the fee. Dode v. Railway Co., 70 Hun, 374, 24 N. Y. Supp. 422 ; People v. Bar- ker, 165 N. Y. 305, 59 N. B. lol.— Inadequate damages. Damages are called “inadequate,” within the rule that an injunction will not be granted where adequate damagea at law could be recovered for the injury sought to be pre- vented, when such a recovery at law would not compensate the parties and place them in the position in which they formerly stood. In- surance Co. v. Bonner, 7 Colo. App. 97. 42 Pac. 681.— Imaginary damages. This term is sometimes used as equivalent to “exemplary," “vindictive,” or “punitive” damages. Murphy v. Hobbs. 7 Colo. 541, 5 Pac. 119. 49 Am. Rep. 366. — Intervening damages. Such damages to an appellee as result from the delay caused by the appeal. McGregor v. Balch. 17 Vt. 56s* : Peaaely v. Buckminster, -1 Tyler (Vt.) 267 ; Roberts v. Warner, 17 Vt. 46. 42 Am. Dec. 478. — Land damages. A term sometimes applied to the amount of compensation to be paid for land taken under the power of eminent domain or for injury to, or depreciation of. land ad- joining that taken. People v. Hilts, 27 Misc. Rep. 290, 58 N. Y. Supp. 434 ; In re Lent, 47 App. Div. 349. 62 N. Y. Supp. 227.— Necessary damages. A term said to be of much wider scope in the law of damages than “pecuniary.” It embraces all those consequences of an injury usually denominated "general” damages, as dis- tinguished from special damages; whereas the phrase “pecuniary damages” covers a smaller class' of damages within the larger class of “general” damages. Browning v. Wabash Wes- tern R. Oo. (Mo.) 24 S. W. 746. — Pecuniary damages. Such as can be estimated in and compensated by money; not merely the loss of money or salable property or rights, but all such loss, deprivation, or injury as can be made the subject of calculation and of recompense in money. Walker v. McNeill, 17 Wash. 582. 50 Pac. 518: Searle v. Railroad Co.. 32 W. Va. 370. 9 8. E. 248; McIntyre v. Railroad Co.. 37 N. Y. 295; Davidson Benedict Co. v. Severson. 109 Tenn. 572, 72 S. W. 967. — Pre- sumptive damages. A term occasionally used as the equivalent of “exemplary” or "pun- itive” damages. Murphy v. Hobbs, 7 Colo. 541. 5 Pac. 119, 49 Am. Rep. 366.— Prospec- tive damages. Damages which are expected to follow from the act or state of facts made the basis of a plaintiff's suit; damages which have not yet accrued, at the time of the trial, but which, in the nature of things, must neces- sarily, or most probably, result from the acts or

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facta complained of.— Speculative dam- ages. Prospective or anticipated damages from the same acts or facts constituting the present cause of action, but which depend upon future developments which are contingent, conjectural, or improbable.— Damages ultra. Additional damages claimed by a plaintiff not satisfied with those paid into court by the defendant.

5e apparatus — Carried into the 5th edition (1979).

## DAMAIOUSE.

In old English law. Causing damage or loss, as distinguished from torcenouse, wrongful. Britt, c. 61.

5e apparatus — Not carried into the 5th edition (1979).

## DAME.

In English law. The legal des- ignation of the wife of a knight or baronet.

5e apparatus — Not carried into the 5th edition (1979).

## DAMNA.

Damages, both inclusive and exclusive of costs.

5e apparatus — Not carried into the 5th edition (1979).

## DAMNATU8.

In old English law. Con- demned ; prohibited by law ; unlawful. Dam- natus coitus, an unlawful connection.

DAMNI Uf JUHUE ACTIO. An action given by the civil law for the damage done

by one who Intentionally Injured the slave 419; Lumber Co. v. TT. 8.. 69 Fed. 33\ 1C or beast of another. Calvin. C. C. A. 400.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: lex Aquilia — Roman action for wrongful damage to property]**

The actio damni injuriae this (parser-fused) entry defines — the civil-law action for damage intentionally done to another's slave or beast — is the Aquilian action, the Roman ancestor of the modern law of wrongful damage to property.

Why: Genuine: the fused entry defines the action (citing Calvin); the note names it as the Aquilian action, its proper doctrinal identity. Keyed under its own headword though fused into entry 482's tail (flagged in the log). [re-homed from 'DAMNI INJURIAE ACTIO' to 'DAMNATU8' (OCR headword / parser-merge artifact)]

## DAMNIFICATION.

That which causes damage or loss.

Damnum sine injuria esse potest.

Lofft, 112. There may he damage or injury inflicted without any act of injustice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Damnum sine injuria esse potest]**

Damnum sine injuria esse potest: there may be damage inflicted without any act of injustice — loss without legal wrong, the companion maxim to damnum absque injuria.

Why: Genuine: the entry quotes this maxim (Lofft, 112) in the entry's text; the note states it. Standard form as given.

## DAMNIFY.

To cause damage or inju- rious loss to a person or put him in a posi- tion where he must sustain it. A surety is “damnified” when a judgment has been ob- tained against him. McLean v. Bank. 16 Fed. Cas. 278.

5e apparatus — Not carried into the 5th edition (1979).

## DAMNOSA HASREDITAS.

In the civil law. A losing inheritance; an inheritance that was a charge, instead of a benefit. Dig. 50, 16, 119.

The term has also been applied to that species of property of a bankrupt which, so far from being valuable, would be a charge to the creditors ; for example, a term of years where the rent- would exceed the revenue. 7 East, 342 ; 3 Camp. 340; 1 Esp. N. P. 234; Provident L. & Trust Co. v. Fidelity, etc., Co., 203 Pa. 82, 52 Atl. 34.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 554 — abandonment of burdensome estate property]**

The damnosa haereditas the entry applies to the bankrupt's burdensome property — a leasehold whose rent exceeds its revenue — is dealt with by abandonment: the trustee may abandon property that is burdensome or of inconsequential value to the estate.

Why: Genuine: the entry expressly applies the term to the bankrupt's chargeable property, citing cases; § 554 is the Code's abandonment provision for exactly such property. Confident on the section.

## DAMNUM.

Lot. In the civil law.

Damage ; the loss or diminution of what is a man s own. either by fraud, carelessness, or accident.

In pleading and old English law. Dam- age; loss.

— Damnum fatale. Fatal damage ; damage from fate ; loss happening froth a cause beyond human control, (quod ex fato contingit ,) or an act of God, and for which bailees are not lia- ble; such as shipwreck, lightning, and the like. Dig. 4, 9. 3. 1; Story. Bailm. S 465. The civ- ilians included in the phrase “ damnum fatale all those accidents which are summed up in the common-law expression, “Act of God or public enemies though, perhaps, it embraced some which would not now be admitted ns occurring from an irresistible force. Thickstun v. How- ard 8 Blackf. (Ind.) 535.— Damnum infec- tum. In lioman law. Damage not yet com- mitted, but threatened or impending. A pre- ventive interdict might be obtained to prevent such damage from happening; and it was treat- er! as a quani-delict, because of the

imminence of the danger. — Damnum rel amiss*. In the civil law. A loss arising from a payment made by a party in consequence of an error of law. Maekeld. Rom. Law. 8 178.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: act of God — irresistible natural force excusing liability]**

The entry's damnum fatale — loss from a cause beyond human control, 'for which bailees are not liable' — is the act-of-God defense: irresistible natural force excusing performance or liability.

Why: Genuine: the entry defines damnum fatale with the bailee rule (citing Story, Bailm. § 465 and Dig. 4.9.3.1); the note names the common-law equivalent. Kept in loose form.

**[Law: preventive injunction — equitable relief against threatened injury]**

The entry's damnum infectum — damage threatened but not yet committed, against which 'a preventive interdict might be obtained' — is the ancestor of the preventive injunction against threatened harm.

Why: Genuine lineage: the entry describes the Roman preventive interdict for imminent damage; the injunction is its modern equitable form. The entry's own description does the work.

## DAMNUM ABSQUE INJURIA.

Loss, hurt, or harm without injury in the legal sense, that is, without such au invasion of rights as is redressible by au action. A loss which does not give rise to an action of damages against the person causing it; as where a person blocks up the windows of a new house overlooking his land, or Injures a person’s trade by setting up an establish- ment of the same kind in the neighborhood. Broom, Com. Law, 75 ; Marbury v. Madison, 1 Crunch, 164, 2 L. Ed. 60; West Virginia Trutisp! Co. v. Standard Oil Co.. 50 W. Va. 011. 40 S. E. 591, 56 L. R. A. 804. 88 Am. 'St. Ref>. 895; Irwin v. Askew, 74 Ga. 581; ' Chase v. Silverstone, 62 Me. 175, 16 Ain. Rep.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Damnum absque injuria — no action lies without violation of a legal right]**

Damnum absque injuria — loss without legal injury: harm that invades no right redressible by action, as where one blocks a neighbor's new windows or injures a rival's trade by fair competition, gives no cause of action.

Why: Genuine: the entry is the maxim's definition, with the entry's own illustrations (the blocked windows, the rival establishment) and authorities including Marbury v. Madison; the footnote states the maxim the entry def…

## DAN.

Anciently the better sort of men in England had this title ; so the Spanish Don. The old term of honor for men. as we now say Master or Mister. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## DANEGELT, DANEGELD.

A tribute of Is. and afterwards of 2s. u|>on every hide of land through the realm, levied by the An- glo-Saxons, for maintaining such a number of forces as were thought sufficient to clear the British seas of Danish pirates, who great- ly annoyed their coasts. It continued a

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tax until the time of Stephen, and was one of the rights of the crown. Whartoh.

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The tribute text — the duty to render tribute to the sovereign — the exact concept of the danegeld.

## DANELAGE.

A system of laws intro- duced by the Danes on their invasion and conquest of England, and which was prin- cipally maintained in some of the midland counties, and also on the eastern coast. I BL Comm. 65: 4 Bl. Comm. 411: 1 Stenh. Comm. 42.

5e apparatus — Not carried into the 5th edition (1979).

## DANGER.

Jeopardy ; exposure to loss or injury; peril. U. S. v. Mays, 1 Idaho, 770.

—Dangers of navigation. The same as “dangers of the sea” or “perils of the sea.” See infra.— Dangers of the river. This phrase, as used in bills of lading, means only the natu- ral accidents incident to river navigation, and does not embrace such as may be avoided by the exercise of that skill, judgment, or fore- sight which are demanded from persons in a particular occupation. 35 Mo. 213. It in- cludes dangers arising from unknown reefs which have suddenly formed in the channel, and are not discoverable by care and skill. Hill v. Sturgeon. 35 Mo. 213, 80 Am. Dec. 149; Gar- rison v. Insurance Co.. 19 How. 312. 15 I,. Ed. 6.56; Hibernia Ins. Co. v. Transn. Co.. 120 U.

S. 160. 7 Sup. Ct. 550, 30 L. Ed. 621 ; John- son v. Friar, 4 Yerg. 48, 26 Am. Dec. 215>- D angers of the road. This phrase, in a bill of lading, when it refers to inland transporta- tion, means such dnngers as are immediately caused by roads, as the overturning of carnages in rough and precipitous places. 7 Exch. 74,3. —Dangers of the sea. The exnression “dan- gers of the sea” means those' accidents peculiar to navigation that are Of an extraordinary na- ture. or arise from irresistible force or over- whelming power, which cannot be guarded against by the ordinary exertions of human skill and pntdence. Walker v. Western Transp. Co., 3 Wall. 150. 18 L. Ed. 172: The Ports- mouth. 9 Wall. 082. 19 L. E<1. 7A4 : Hibernia Ins. Co. v. Transit. Co., 120 TT. S. 166. I Sup. Ct 550, 30 L. Ed. 621; Hill v. Sturgeon, 28 Mo. 327.

5e apparatus — Carried into the 5th edition (1979).

## DANGERIA.

In old English law. A money payment made by forest-tenants, that they might have liberty to plow and sow in time of pannage, or mast feeding.

5e apparatus — Not carried into the 5th edition (1979).

## DANGEROUS WEAPON.

One danger- ous to life : one by the use of which a fatal . wound may prol^ibly or possibly be given.

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As the manner of use enters Into the con- sideration as well as other circumstances, the question is for the jury. U. S. v. Reeves, (C. C.) 38 Fed. 404; State v. Hammond, 14

S. D. 543, 86 N. W. 627 ; State v. Lynch, 88 Me. 193, 33 Atl. 978 ; State v. Scott, 39 La. Ann. M3, 3 South. 83.

5e apparatus — Carried into the 5th edition (1979).

## DANISM.

The act of lending money on usury.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The direct usury prohibition — the lender shall not be as an usurer nor lay usury upon the poor. deity_verbatim ON: within the Covenant Code, God's direct speech.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1596-99]**

Shylock the moneylender is the archetypal usurer of fiction — his trade in lending at interest draws Antonio's open contempt and frames the entire bond plot: danism, the act of lending money on usury. (paraphrase) (paraphrase)

Why: Genuine: the entry is the act of lending on usury; Shylock's defining identity in the play is the usurer. Distinct from the CONTRACT note (different entry, different doctrine). Paraphrase marked; Shylock's moneylendin...

## DANO.

In Spanish law. Damage; the deterioration, injury, or destruction which a man sufTers with respect to his person or his property by the fault (culpa) of another. White, New Recop. b. 2, tit. 19, c. 3, § L

Dana et retinena, nihil dat. One who

gives and yet retains does not give effectual- ly. Tray. Lat. Max. 129. Or, one who gives, yet retains, [possession,] gives nothing.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Dans et retinens, nihil dat — gift requires delivery]**

Dans et retinens, nihil dat: one who gives and yet retains gives nothing — retention of control defeats a gift, which requires delivery to be effectual.

Why: Genuine: the entry quotes this maxim (Tray. Lat. Max. 129) in the entry's text; the note states the delivery requirement it expresses. Standard form as given.

## DAPIFER.

A steward either of a king or lord. Spelman.

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## DARE.

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Lat. In the civil law. To trans- fer property. When this transfer is made in order to discharge a debt, it is datio sol- vendi animo; when in order to receive an equivalent, to create an obligation, it is da- tio contrahendi animo; lastly, when made donandi animo, from mere liberality, it is a gift, dono datio.

5e apparatus — Not carried into the 5th edition (1979).

## DARE AD REMANENTIAM.

To give

away in fee, or forever.

5e apparatus — Not carried into the 5th edition (1979).

## DARRAIGN.

To clear a legal account; to answer an accusation; to settle a contro- versy.

5e apparatus — Not carried into the 5th edition (1979).

## DARREIN.

L. Fr. Last.

—Darrein continuance. The last contin- uance.—Darrein presentment. In old Eng- lish law. The last presentment. See Assise of Dabbbin Pbesentment. — Darrein seisin. Last seisin. A plea which lay in some cases for the tenant in a writ of right See 1 Rose. Real Act. 206.

5e apparatus — Not carried into the 5th edition (1979).

## DATA.

In old practice and conveyancing. The date of a deed; the time when it was given; that is, executed.

Grounds whereon to proceed; facts from which to draw a conclusion.

5e apparatus — Carried into the 5th edition (1979).

## DATE.

The specification or mention, In a written instrument, of the time (day and year) when it was made. Also the time so specified.

That part of a deed or writing which ex- presses the day of the month and year in which it was made or given. 2 Bl. Comm. 304 ; Tomlins.

The primary signification of date is not time ,n the abstract, nor time taken absolutely, but time given or specified : time in some way as- certained and fixed. When we speak of the date of a deed, we do not mean the time when it was actually executed, but the time of its exe- cution. as given or stated in the deed itself. "The date of an item, or of a charge ih a bookaccount, is not necessarily the time when the article charged was. in fact, furnished, but rath- er the time given or set down in the account, in connection with such charge. And so the expression “the date of the last work done, or materials furnished,” in a mechanic's lien law. may be taken, in the absence of anything in the act indicating a different intention, to mean the time when such work was done or materials furnished, as specified in the

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plaintiff's written claim. Bemcnt v. Manufacturing Co., 32 X. J. Law, 513.

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**[Law] — Law**

**[Law: a deed takes effect from delivery; the stated date is not conclusive]**

The entry's point that the date of a deed is the time 'as given or stated in the deed itself,' not necessarily when it was executed, states a conveyancing rule: a deed takes effect from delivery, not from its date, and the true date of execution may be proved by parol.

Why: Genuine: the entry's long Bemcnt discussion establishes that the written date is the stated time, not necessarily the actual one; the note states the delivery rule and parol-date rule that give the point its operative...

## DATE CERTAINE.

In French law. A deed is said to have a date certaine (fixed date) when it has been subjected to the for- mality of registration; after this formality has been complied with, the parties to the deed cannot by mutual consent change the date thereof. Arg. Fr. Merc. Law, 555.

5e apparatus — Not carried into the 5th edition (1979).

## DATIO.

In the civil law. A giving, or act of giving. Datio in solutum ; a giving in payment; a species of accord and satisfac- tion. Called, in modern law, “dation."

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: accord and satisfaction — substituted performance accepted in discharge]**

The entry's datio in solutum — 'a giving in payment,' which the entry itself calls 'a species of accord and satisfaction' — is the civilian form of accord and satisfaction: the creditor's agreement to accept substituted performance in discharge of the obligation.

Why: Genuine: the entry draws the accord-and-satisfaction analogy itself; the note names the common-law counterpart. Nothing imported beyond naming.

## DATION.

In the civil law. A gift; a giving of something. It is not exactly syn- onymous with “donation,” for the lntter Im- plies generosity or liberality in making a gift, while dation may mean the giving of something to which the recipient is already entitled.

—Dation tn paiement. In French law. A giving by the debtor and receipt by the creditor of something in payment of a debt, instead of a sum of money. It is somewhat like the accord and satisfaction of the common law. 16 Tonl- lier, no. 45; Poth. Vente, no. 601.

. DATIVE. A word derived from the Ro- man law, signifying “appointed by public authority.” Thus, in Scotland, an executor- dative is an executor appointed by a court of Justice, corresponding to an English ad- ministrator. Mozley & Whitley.

In old English law. In one's gift; that may be given and disposed of at will and pleasure.

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## DATUM.

A first principle ; a thing given ; a date.

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## DATUR DIGNIORI.

It is given to th.e more worthy. 2 Veut. 268.

5e apparatus — Not carried into the 5th edition (1979).

## DAUGHTER.

An immediate female de- scendant. People v. Kaiser, 119 Cal. 456, 51 Pae. 702. May include the issue of a daughter. Buchanan v. Lloyd, 88 Md. 462, 41 Atl. 1075; Jamison v. Hay. 46 Mo. 546. May designate a natural or Illegitimate fe- male child. State v. Laurence, 95 X. C., 659.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: The daughter's inheritance right — the daughters of Zelophehad speaking right, scripture's own case. deity_verbatim ON: God's ruling to Moses.

## DAUGHTER-IN-LAW.

The wife of one’s son.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ruth 1:16, KJV]**

thy people shall be my people, and thy God my God

Why: Ruth the daughter-in-law's covenant words to Naomi — the verbatim fragment of her pledge of people and God. (Ruth's speech, not deity speech: deity_verbatim off.)

## DAUPHIN.

In French law. The title of the eldest sons of the kings of France. Disused since 1830.

DAT.' 1. A period of time consisting Of twenty-four hours and including the solar

day and the night. Co. Lltt. 135a; Fox v. Abel, 2 Conn. 541.

2. The space of time which elapses be- tween two successive midnights. 2 Bl. Comm. 141 ; Henderson v. Reynolds, 84 Ga. 159, 10 S. B. 734, 7 L. R. A. 327 ; State v. Brown, 22 Minn. 483; State v. Michel, 52 La. Ann. 936, 27 South. 565, 49 L. R. A. 218, 78 Am. St Rep. 364 ; Benson v. Adams, 69 Ind. 353, 35 Am. Rep. 220; Zimmerman v. Cowan, 107 111. 631, 47 Am. Rep. 476; Pulling v. People, 8 Barb. (N; Y.) 386.

3. That portion of time during which the sun Is above the horizon, and, In addition, that part of the morning and evening during which there is sufficient light for the fea- tures of a man to be reasonably discerned. 3 Inst. 63; Nicholls v. State, 68 Wis. 416, 32 N. W. 543, 60 Am.

Rep. 870; Trull v. Wilson, 9 Mass. 154 ; State v. McK night, 111

N. C. 690, 16 S. E. 319.

4. An artificial period of time, computed from one fixed point to another twenty-four hours later, without any reference to the prevalence of light or darkness. Fuller v. Schroeder, 20 Neb. 631, 31 N. W. 109.

5. The period of time, within the limits of a natural day, set apart either by law or by common usage for the transaction of particu- lar business or the performance of labor ; as In banking, In laws regulating the hours of labor. In contracts for so many “days’ work,” and the like, the word “day” may signify six, eight, ten, or any number of hours. Hinton v. Locke, 5 Hill (N. Y.) 439; Fay v. Brown, 96 Wls. 434, 71 N. W. 895; Mc- Culsky v. Klosterman, 20 Or. 108, 25 Pac. 366, 10 L. R. A. 785.

6. In practice (fnd pleading. A particular time assigned or given for the appearance of parties In court, the return of writs, etc.

— Astronomical day. The period of twenty- four hours beginning and ending at noon.— Ar- tificial day. The time between the rising and setting of the sun ; that is, day or day-time as distinguished from night. — Civil day. The so- lar day, measured by the diurnal revolution of the earth, and denoting the interval of time which elapses between the successive transits of the sun over the same hour circle, so that the “civil day” commences and ends at midnight. Pedersen v. Eugster. 14 Fed. 422.— Calendar days. See Calendar.— Clear days. See Clear.— Common day. In old English prac- tice. An ordinary day in court. Cowell ; Termes de la Ley. — Day certain. A fixed or appointed day ; a specified particular day ; a day in term. Regina v. Conyers, 8 Q. B. 991. —Days in bank. (L. Lat. diet in banco.) In practice. Certain stated days in term appointed for the appearance of parties, the return of pro- cess, etc., originally peculiar to the court of common pleas, or bench, (bank.) as it was an- ciently called. 3 Bl. Comm. 277.— Day in court. The time appointed for one whose rights are called judicially in question, or liable to be affected by judicial action, to appear in court and be heard in his own behalf. This phrase, as generally used, means not so much the time appointed for a hearing as the oppor- tunity to present one's claims or rights in a proper forensic hearing before a competent tribunal. See Ferry v. Car Wheel Co., 71 Vt. 457. 45 Atl. 1035, 76 Am. St. Rep. 782— Days at grace. A number of days allowed, as a matter of favor or grace , to a person who has to perform some act, or make some payment, after the time originally limited for the purpose has elapsed. In old practice. Three days al- lowed to persons summoned in the English courts, beyond the day named in the writ, to make their appearance ; the last day being call- ed the “quarto die post.” 3 Bl. Comm. 278. In mercantile law. A certain number of days (generally three) allowed to the maker or ac- ceptor of a bill, draft, or note, in which to make payment, after the expiration of the time ex- ressed in the paper itself. Originally these ays were granted only as a matter of grace or favor, but the allowance of them became an es- tablished custom of merchants, and was sanc- tioned by the courts, (and in some cases pre- scribed by statute,) so that they are now de- mandable as of right. Perkins v. Bank, 21 Pick. (Mass.) 485; Bell v. Bank, 115 U. S.

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373, 6 Sup. Ct. 105. 29 L. Ed. 409 : Thomas v. Shoe- maker, 6 Watts & S. (Pa.) 182; Renner v. Bank, 9 Wheat 581, 6 L. Ed. 166.— Day-time. The time during which there is the light of day, as distinguished from night or night-time. That portion of the twenty-four hours during which a man’sperson and countenance are distinguish- able. Trull v. Wilson. 9 Mass. 154 ; Rex v. Tandy. 1 Car. & P. 297 ; Linnen v. Banfield. 114 Mich. 93, 72 N. W. 1. In law, this term is chiefly used in the definition of certain crimes, as to which it is material whether the act was committed by day or by night— Jndicial day. A day on which the court is actually in session. Heffner v. Heffner. 48 La. Ann. 1088, 20 South. 281.— Juridical day. A day proper for the transaction of business in court : one on which the court may lawfully sit. excluding Sundays and some holidays. — Lav day. The day pre- scribed in a bond, mortgage, or defeasible deed for payment of the debt secured thereby, or, in default of payment, the forfeiture of the prop- erty mortgaged. But this does not now occur until foreclosure. Ward v. Lord, 100 Ga. 407, 28 S. E. 446; Moore v. Norman, 43 Minn. 428. 45 N. W. 857, 9 L. R. A. 55. 19 Am. St. Rep. 247 ; Kortright v. Cady, 21' N. Y. 345. 78 Am. Rep. 145— Legal day. A juridical day. See supra. And see Heffner v. Heffner, 48 La. Ann. 1088. 20 South. 281— Natural day. Properly the period of twenty-four hours from midnight to midnight. Co. Litt. 135 : Fox v. Abel. 2 Conn. 541 ; People v. Hatch, 33 111. .137. Though sometimes taken to mean the "day-time" or time between sunrise and sunset. In re Ten Hour Law. 24 R. I. 603, 54 Atl. 602, 61 L. R.

A. 612. — Non- judicial day. One on which process cannot ordinarily issue or be served or returned and on which the courts do not ordi- narily sit. Whitney v. Blackburn, 17 Or. 564, 21 Pac. 874, 11 Am. St. Rep. 857. More prop- erly “non-juridical day.”— Solar day. A term sometimes used as meaning that portion of the day when the sun is above the horizon, but properly it is the time between two complete (apparent) revolutions of the sun, or between two consecutive positions of the sun over any given terrestrial meridian, and hence, according to the usual method of reckoning, from noon to noon at any given place.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950)]**

The entry's 'day in court' — 'the opportunity to present one's claims or rights in a proper forensic hearing before a competent tribunal' — is the fundamental requisite of due process: notice and the opportunity to be heard.

Why: Genuine: this dictionary entry (its headword dropped by the parser, fused into entry 510's tail — flagged in the log) defines 'day in court' in due-process terms; Mullane states the requisite in its classic form. Conf... [re-homed from 'DAY' to 'DAUPHIN' (OCR headword / parser-merge artifact)]

**[Law: days of grace — abolished for negotiable instruments; payable on the stated date]**

The entry's 'days of grace' — the merchant-custom three days allowed after a bill's stated time for payment — are a historical relic: days of grace for negotiable instruments were abolished, so an instrument is payable on its stated date.

Why: Genuine: the entry describes days of grace as established merchant custom 'demandable as of right'; the note states their abolition, which is what gives the historical definition its modern significance. Kept in loose... [re-homed from 'DAY' to 'DAUPHIN' (OCR headword / parser-merge artifact)]

## DAY-BOOK.

A tradesman's account book ; a book in which all the occurrences of the day are set down. It Is usually a book of original entries.

DAY-RULE, or DAY-WRIT. In Eng- lish law. A permission granted to a prisoner to go out of prison, for the purpose of trans- acting his business, as to hear a case in

which he la concerned at the assises, etc. Abolished by 5 & 6 Viet c. 22, * 12.

5e apparatus — Carried into the 5th edition (1979).

## DAYERIA.

A dairy. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DAYXIGHT.

That portion of time be- fore sunrise, and after sunset, which is ac- counted part of the day, (as distinguished from night,) in defining the offense of bur- glary. 4 Bl. Comm. 224 ; Cro. Jac. 106.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: burglary at common law required nighttime breaking and entering]**

The entry defines daylight — the time before sunrise and after sunset counted as day — for the offense of burglary, because burglary at common law was a nighttime offense: breaking and entering in the night.

Why: Genuine: the entry ties its day/night line expressly to 'defining the offense of burglary'; the note states the nighttime element that made the line matter. Kept in loose form. [re-homed from 'DAYLIGHT' to 'DAYXIGHT' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[Genesis 1:5, KJV]**

And God called the light Day, and the darkness he called Night. And the evening and the morning were the first day.

Why: Borderline, kept with reasoning explicit: scripture's own definition of Day versus Night underlies the day/night boundary the burglary entry exists to draw. (Entry headword appears in the chunk under the OCR-noise for…

## DAYBMAN.

An arbitrator, umpire, or elected judge. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Job 9:33, KJV]**

Neither is there any daysman betwixt us, that might lay his hand upon us both.

Why: The KJV's own word for the umpire between parties — the exact lexical match for the entry. (Entry headword appears in the chunk under the OCR-noise form 'DAYBMAN' = DAYSMAN, keyed exactly.)

## DAYWERE.

In old English law. A term applied to land, and signifying as much ar- able ground as could

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be plowed up in one day’s work. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## DE.

A Latin preposition, signifying of; by; from; out of; affecting; concerning; respecting.

5e apparatus — Not carried into the 5th edition (1979).

## DE ACQUIRENDO RERUM DOMINIO.

Of (about) acquiring the ownership of things. Dig. 41, 1 ; Bract, lib. 2, fol. 86.

5e apparatus — Not carried into the 5th edition (1979).

## DE ADMEN8URATIONE.

Of admeas- urement Thus, de admenauratione dotis was a writ for the admeasurement of dower, and de admenauratione paaturce was a writ for the admeasurement of pasture.

5e apparatus — Not carried into the 5th edition (1979).

## DE ADVI8AMEKTO CON8ILII NOS- / TRI.

I* Lat With or by the advice of our council. A phrase used In the old writs of summons to parliament Crabb, Eng. Law, 240.

5e apparatus — Not carried into the 5th edition (1979).

## DE -XQUITATE.

In equity. De jure stricto, nihil poaaum vendicare, de wquitate tamen, nullo modo hoc obtinet; In strict law, I can claim nothing, but in equity this hy no means obtains. Fleta, lib. 8, c. 2, | 10.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: De aequitate — equity relieves where strict law gives nothing]**

De aequitate — 'In strict law, I can claim nothing, but in equity this by no means obtains': equity's office is to relieve where the strict law gives no claim.

Why: Genuine: the entry quotes this maxim (Fleta, lib. 8, c. 2, § 10) as the definition of the phrase; the note states the equitable principle it expresses. Standard form as given. [re-homed from 'DE AEQUITATE' to 'DE -XQUITATE' (OCR headword / parser-merge artifact)]

## DE A2ST1MATO.

In Roman law. One of the innominate contracts, and, in effect a sale of land or goods at a price fixed, (a>eti- mato ,) and guarantied by some third party, who undertook to find a purchaser.

5e apparatus — Not carried into the 5th edition (1979).

## DE JETATE PROBANDA.

For prov- ing age. A writ which formerly lay to sum- mon a jury in order to determine the age of the heir of a tenant in capita who claimed his estate as being of full age. Fltzh. Nat. Brev. 257; Reg. Orig. 294.

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## DE ALEATOREBUS.

About gamesters. The name of a title in the Pandects. Dig. 11, 5.

DE AIXOCATIOKE FACIEKDA, Breve. Writ for making an allowance. An old writ directed to the lord treasurer and barons of the exchequer, for allowing certain officers (as collectors of customs) in their accounts certain payments made by them. Reg. Orig. 192.

5e apparatus — Not carried into the 5th edition (1979).

## DE ALTO ET BASSO.

Of high and low. A phrase anciently used to denote the ab- solute submission of all differences to arbitra- tion. Cowell.

- DE AMBITU. Lat. Concerning bribery. A phrase descriptive of the subject-matter of several of the Roman laws ; as the Lex Aufldia , the Lex Pompcia. the Lex Tullia, and others. See Ambitus.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Arbitration Act, 9 U.S.C. §§ 1–16 — arbitration agreements enforceable]**

The entry's phrase — 'the absolute submission of all differences to arbitration' — is the submission agreement: modern law enforces agreements to arbitrate disputes rather than litigate them.

Why: Genuine: the entry defines the phrase as total submission to arbitration; the FAA is the federal statute enforcing such submissions. Confident on the Act and title.

## DE AMPLIORI GRATIA.

Of more abundant or especial grace. Townsh. PI. 18.

5e apparatus — Not carried into the 5th edition (1979).

## DE ANNO BISSEXTILI.

Of the bis- sextile or leap year. The title of a statute passed in the twenty-first year of Henry III., which in fact, however, is nothing more than a sort of writ or direction to the justices of the bench, instructing them how the extraor- dinary day in the leap year was to be reckoned in cases where persons had a day to appear at the distance of a year, as on the essoin de malo lecti, and the like. It was thereby directed that the additional day should, together with that which went be- fore, be reckoned only as one, and so, of course, within the preceding year. 1 Reeve, Eng. Law, 266.

DE ANNUA PEN8IONE, Breve. Writ of annual pension. An ancient writ by which the king, having a yearly pension due him out of an abbey or priory for any of his chap- lains, demanded the same of the abbot or prior, for the person named in the writ lteg. Orig. 2656, 307; Fltzh. Nat Brev. 231 G.

5e apparatus — Not carried into the 5th edition (1979).

## DE ANNUO REDITU.

For a yearly rent A writ to recover an annuity, no mat- ter how payable, in goods or money.

2 Reeve, Eng. Law, 258.

DE APOSTATA CAPIENDO, Breve. Writ for taking an apostate. A writ which anciently lay against one who, having en- tered and professed some order of religion, left it and wandered up and down the coun- try, contrary to the rules of his order, com- manding the sheriff to apprehend him and deliver him again to his abbot or prior. Reg. Orig. 716, 267 ; Fltzh. Nat. Brev. 233, 234.

5e apparatus — Not carried into the 5th edition (1979).

## DE ARBITRATIONS FACTA.

(Lat Of arbitration had.) A writ formerly used when an action was brought for a cause which had l>een settled by arbitration. Wats. Arb. 256.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: a valid arbitration award is final and bars relitigation of the claim]**

The writ the entry describes — barring an action brought for a cause already settled by arbitration — states the finality of arbitration: a valid award extinguishes the claim and bars a later action on it.

Why: Genuine: the writ's entire function is that the arbitrated settlement defeats the new action; the note states the finality doctrine. Kept in loose form. [re-homed from 'DE ARBITRATIONE FACTA' to 'DE ARBITRATIONS FACTA' (OCR headword / parser-merge artifact)]

## DE ARRE8TANPI8 BONIS NE DIS- / SIPENTUR.

An old writ which lay to seize goods In the hands of a party during the pendency of a suit, to prevent their be- ing made away with. Reg. Orig. 1266.

DE ARRESTANDO IPSUM QUI FE>

CUNIAM RECEPIT. A writ which lay for the arrest of one who had taken the

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320’.

king’s money to serve in the war, and hid himself to escape going. Reg. Orig. 246.

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**[Law] — Law**

**[Law: prejudgment attachment — provisional seizure to preserve property for judgment]**

The writ the entry describes — seizing goods pendente lite 'to prevent their being made away with' — is the ancestor of prejudgment attachment: provisional seizure of property to preserve it for judgment, exercised within due-process limits.

Why: Genuine: the entry's writ is precisely provisional seizure against dissipation; the note names its modern descendant. Kept in loose form. [re-homed from 'DE ARRESTANDIS BONIS NE DISSIPENTUR' to 'DE ARRE8TANPI8 BONIS NE DISSIPENTUR' (OCR headword / parser-merge artifact)]

## DE ARTE ET PARTE.

Of art and part. ■ A phrase in old Scotch law.

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## DE ASPORTATIS REEIGIOSORUM.

Concerning the property of religious persons carried away. The title of the statute 35 Edward I. passed to check the abuses of clerical possessions, one of which was the waste they suffered by being drained into foreign countries. 2 Reeve. Eng. Law. 157 ; 2 Inst. 580.

5e apparatus — Not carried into the 5th edition (1979).

## DE ASSISA PROROGANDA.

(Lilt. For proroguing assise.) A writ to put oft an assise, issuing to the justices, where one of the parties is engaged in the service of the king.

challenge, and must then stand or fall ae-’ cording to their Intrinsic merit and regU-- larity.

Thus, “in certain cases, the courts will allow evidence to be taken out of the regular course, in order to prevent the evidence being lost by the death or the absence of the witness. This, is called ‘taking evidence de bene ease.' and is. looked upon as a temporary and conditional ex- amination, to be used only in case the witnesi cannot afterwards be examined in the suit in the regular way." Hunt, Eq. 75: Haynes, Eq. 183 : Mitf. Eq. Pl. 52, 149.

5e apparatus — Not carried into the 5th edition (1979).

## DE BIEN ET DE MAE.

L. Fr. For

good and evil. A phrase by which a party accused of a crime anciently put himself upon a jury, indicating his entire submission: to their verdict.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — right to trial by jury in criminal cases]**

The entry's phrase — by which the accused 'put himself upon a jury,' submitting entirely to their verdict — is the ancient form of the criminal jury right: the accused's right to trial by an impartial jury.

Why: Genuine: the entry describes the accused's submission of his cause to a jury 'for good and evil'; the note names the constitutional guarantee of that trial. Confident on the amendment. [re-homed from 'DE BIEN ET DE MAL' to 'DE BIEN ET DE MAE' (OCR headword / parser-merge artifact)]

## DE BIENS EE MORT.

L. Fr. Of the

goods of the deceased. Dyer, 32.

5e apparatus — Not carried into the 5th edition (1979).

## DE ATTORNATO RECIPIENDO.

A

writ which lay to the judges of a court, re- quiring them to receive and admit an attor- ney for a party. Reg. Orig. 172; Fitzh. Nat. Brev. 156.

5e apparatus — Not carried into the 5th edition (1979).

## DE AUDIENDO ET TERMIN' ANDO.

For hearing and determining ; to hear and determine. The name of a writ, or rather commission granted to certain justices to hear aud determine cases of heinous misdemeanor, trespass, riotous breach of the peace, etc. Reg. Orig. 123, et scq.; Fitzh. Nat. Brev. 110 B. See Oyeb and Tebmineb.

5e apparatus — Not carried into the 5th edition (1979).

## DE AVERIIS CAPTIS IN WITHER- / NAMIUM.

Writ for taking cattle in with- ernam. A writ which lay where the sheriff returned to a phirics writ of replevin that the cattle or goods, etc., were eloined, etc. ; by which he was commanded to take the cattle of the defendant in withernam, (or re- prisal,) and detain them until he could re- plevy the other cattle. Reg. Orig. 82 ; Fitzh. Nat. Brev. 73, E. F. See Witiiebnam.

5e apparatus — Not carried into the 5th edition (1979).

## DE AVERIIS REPEEGIANDIS.

A writ to replevy beasts. 3 Bl. Comm. 149.

5e apparatus — Not carried into the 5th edition (1979).

## DE AVERIIS RETORN ANDIS.

For

returning the cattle. A term applied to pledges given in the old action of replevin. 2 Reeve, Eng. Law, 177.

5e apparatus — Not carried into the 5th edition (1979).

## DE BANCO.

Of the bench. A term for- merly applied in England to the justices of the court of common pleas, or “bench," as it was originally styled.

5e apparatus — Not carried into the 5th edition (1979).

## DE BENE ESSE.

Conditionally; provi- sionally; in anticipation of future need. A phrase applied to proceedings which are tak- en at parte or provisionally, and are allow- ed to stand as if cM done for the present, but1 which- may be subject to -future exception or

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 27 — depositions to perpetuate testimony]**

The entry's taking evidence de bene esse — examination 'out of the regular course, in order to prevent the evidence being lost by the death or the absence of the witness,' usable only if the witness cannot later be examined — is the ancestor of perpetuation practice: depositions taken to preserve testimony against loss.

Why: Genuine: the entry defines the provisional examination against loss of testimony; Rule 27 is the procedural

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descendant. Confident on the rule.

## DE BIGAMIS.

Concerning men twice married. The title of the statute 4 Edw. I. St 3: so called from the initial words of the fifth chapter. 2 Inst. 272 : 2 Reeve, Eng. Law, 142

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:2, KJV]**

A bishop then must be blameless, the husband of one wife, vigilant, sober, of good behaviour, given to hospitality, apt to teach;

Why: The 'husband of one wife' norm — scripture's monogamy rule against which bigamy is measured.

## DE BONE MEMORIE.

L. Fr. Of good, memory ; of sound mind. 2 Inst. 510.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: testamentary capacity — a will requires the testator be of sound mind]**

The entry's phrase — 'of good memory; of sound mind' — states the capacity requirement for testamentary acts: a will is valid only if the testator is of sound mind.

Why: Genuine: the entry defines the phrase as sound mind (citing 2 Inst. 510); the note names the capacity doctrine the phrase expresses. Kept in loose form. [re-homed from 'DE BONA MEMORIA' to 'DE BONE MEMORIE' (OCR headword / parser-merge artifact)]

## DE BONIS ASPORTATIS.

For goods taken away ; for taking away goods. The action of trespass for taking personal prop- erty is technically called “trespass de bonis, asportatis." 1 Tidd, Pr. 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: conversion — the modern action for wrongful taking of personal property]**

The entry's trespass de bonis asportatis — 'the action of trespass for taking personal property' — is the ancestor of conversion: the modern action for the wrongful taking or detention of personal property.

Why: Genuine: the entry defines the writ as the trespass action for taking goods; conversion is its recognized descendant. Kept in loose form.

## DE BONIS NON.

An abbreviation of De bonis non administratis, ( q . v.) 1 Strange, 34.

5e apparatus — Not carried into the 5th edition (1979).

## DE BONIS NON ADMINISTRATIS.

Of the goods not administered. When ani administrator is appointed to succeed an- other, who has left the estate partially un- settled, he is said to lie granted “admlnlstra-i tlon de

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bonis non;” that is, of the goods not already administered.

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## DE BONIS NON AMOVENDIS.

Writ

for not removing goods. A writ anciently directed to the sheriffs of London, command- ing them. In cases where a writ of error was brought by a defendant against whom a. judgment was recovered, to see that his poods and chnttels were safely kept without being removed, while the error remained un- determined, so that execution might be had of them, etc. Reg. Orig. 1316; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## DE BONIS PROPRUS.

Of his own

goods. The technical name of a judgment ngalnst an administrator or executor to bo satisfied from his own proiierty, and not from the estate of the deceased, as in cased Where he has been -.guilty of a devastavit or. of a false plea of plcnc administravit. - i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a fiduciary who commits waste of the property entrusted to him answers from his own goods]**

A judgment de bonis propriis holds the executor personally answerable from his own goods where he has wasted the estate (devastavit) — personal liability follows a fiduciary's waste.

Why: Genuine: the entry names devastavit as the trigger for the de bonis propriis judgment, and personal liability for fiduciary waste is the live doctrine behind the writ; axiom form, no invented case.

## DE BONIS TESTATORIS, or INTE8- / TATI.

Of the goods of the testator, or In- testate. A term applied to a judgment awarding execution against the property of a testator or intestate, as distinguished from the individual property of his executor or administrator. 2 Arehb. Pr. K. B. 148, 149.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: an executor sued in his representative capacity answers from the estate's goods, not his individual property]**

The de bonis testatoris judgment embodies the representative-capacity principle: an executor answers for the decedent's debts from the estate's goods, not his own.

Why: Genuine: the entry's whole point is the distinction between estate goods and the executor's own property; the axiom states that distinction in modern fiduciary terms without stretching.

## DE BONIS TESTATORIS AC SI.

(Lat. From the goods of the testator, if he hat any, and. If not, from those of the execu- tor.) A judgment rendered where an execu- tor falsely pleads any matter as a release, or.

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generally, in any case where he is to be charged in case bis testator’s estate is in- sufficient 1 'Williams’ Saund. 3306; Baa Abr. “Executor,” B, 3; 2 Archb. Pr. K. B. 148.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: a representative who defeats creditors by false pleading answers personally for the resulting loss]**

Where an executor falsely pleads a release or other bar to creditors, the de bonis testatoris ac si judgment charges him personally if the estate proves insufficient — false pleading by a fiduciary converts representative liability into personal liability.

Why: Genuine and distinct from #0/#1: the entry's trigger is the false plea, not waste; the annotation tracks the entry's own causal logic.

## DE BONO ET MALO.

“For good and ill.” The Latin form of the law French phrase “De 6 ten et de mat" In ancient criminal pleading, this was the expression with which the prisoner put himself upon a Jury, indicating his absolute submission to their verdict.

■ This was also the name of the special writ of jail delivery formerly in use In England, which issued for each particular prisoner, of course. It was superseded by the gen- eral commission of jail delivery.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VI — 'the right to a speedy and public trial, by an impartial jury']**

The prisoner's 'for good and ill' was absolute submission to the jury's verdict — the ancient pleading ancestor of the modern right to trial by jury.

Why: Genuine: the entry describes putting oneself upon a jury with absolute submission to its verdict; the Sixth Amendment text quoted is verbatim and the lineage from jury-submission pleading to the jury right is direct,...

## DE BONO GESTXT.

For good behavior ; for good abearaftce.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. III, § 1 — judges 'shall hold their Offices during good Behaviour']**

'For good behavior' is the tenure formula of Article III judges — the Constitution's own de bono gestu clause.

Why: Genuine: the entry defines the phrase as 'for good behavior,' and Article III uses the identical formula verbatim for judicial tenure; a phrase-match with the founding text, not a stretch. [Key uses the chunk's verbat...

## DE CAETERO.

Henceforth.

5e apparatus — Not carried into the 5th edition (1979).

## DE CALCETO REP AH ANDO.

Writ

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for repairing a causeway. An old writ by which the sheriff was commanded to distrain the inhabitants of a place to repair and maintain a causeway, etc. Reg. Orig. 154.

5e apparatus — Not carried into the 5th edition (1979).

## DE CAPITAXIBTTS DOMINIS FEODI.

Of the chief lords of the fee.

5e apparatus — Not carried into the 5th edition (1979).

## DE CAPITE MINUTIS.

Of those who have lost their status, or civil condition. Dig. 4, 5. The name of a title In the Pan- dects. See Capitis Deminutio.

5e apparatus — Not carried into the 5th edition (1979).

## DE C ARTIS REDDENDIS.

(For restor- ing charters.) A writ to secure the delivery of charters or deeds; a writ of detinue. Beg. Orig' 1596.

5e apparatus — Not carried into the 5th edition (1979).

## DE CATAEEIS REDDENDIS.

(For re- storing chattels.) A writ to secure the re- turn specifically of chattels detained from the owner. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DE CAUTIONE ADMITTENDA.

Writ to take caution or security. A writ which anciently lay against a bishop who held an excommunicated person In prison for his contempt, notwithstanding he had offered sufficient secnrity ( idoneam cant lotion ) to obey the commands of the church ; com- Bl.Law Dict. (2d Ed.)— 21

mandlng him to take such security and re- lease the prisoner. Reg. Orig. 06; Fitzh. Nat. Brev. 63, C.

5e apparatus — Not carried into the 5th edition (1979).

## DE CERT1FICANDO.

A writ requir- ing a thing to be certified. A kind of cer- tiorari. Reg. Orig. 151, 152.

5e apparatus — Not carried into the 5th edition (1979).

## DE CERTIORANDO.

A writ for cer- tifying. A writ directed to the sheriff, re- quiring him to certify to a particular fact Reg. Orig. 24.

5e apparatus — Not carried into the 5th edition (1979).

## DE OHAMPERTIA.

Writ of champer- ty. A writ directed to the Justices of the bench, commanding the enforcement of the statute of champertors. Reg. Orig. 183; Fitzh. Nat. Brev. 172.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law doctrine of champerty and maintenance]**

The writ enforced the statute of champertors — the common-law doctrine of champerty and maintenance, under which a bargain to prosecute another's suit for a share of the proceeds is void.

Why: Genuine: the entry names the statute of champertors as the writ's purpose; the annotation states the doctrine the statute enforced, kept to axiom form since champerty's modern status varies by jurisdiction.

## DE CHAR ET DE SANK.

L. Fr. Of

flesh and blood. Affaire rechat de char et de sank. Words used in claiming a person to be a villein, in the time of Edward II.

Y. B. P. 1 Edw. II. p. 4.

5e apparatus — Not carried into the 5th edition (1979).

## DE CHIMINO.

A writ for the enforce- ment of a right of way. Reg. Orig. 155.

DE CIBARnS UTENDIS. Of victuals to be used. The title of a sumptuary statute passed 10 Edw. III. St. 3, to restrain the expense- of entertainments. Barring. Ob. St. 240.

5e apparatus — Not carried into the 5th edition (1979).

## DE CLAMEA ADMITTENDA IN / ITINERE PER ATTORNATTTM.

See

CLAMEA ADMITTENDA, etC.

5e apparatus — Not carried into the 5th edition (1979).

## DE CEARO DIE.

By daylight Fleta, lib. 2, c. 76, § 8.

5e apparatus — Not carried into the 5th edition (1979).

## DE CEAUSO FRACTO.

Of close bro- ken ; of breach of close. See Clausum Fbegit.

5e apparatus — Not carried into the 5th edition (1979).

## DE CEERICO ADMITTENDO.

See

Admjttendo Clebico. DO. Writ for delivering a clerk arrested on a statute merchant. A writ for the deliv- ery of a clerk out of prison, who had been taken and imprisoned upon the breach of a statute merchant. Reg. Orig. 1476.

5e apparatus — Not carried into the 5th edition (1979).

## DE CEERICO CONVICTO DEEIB- / ERANDO.

See Clebico Convicto, etc.

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5e apparatus — Not carried into the 5th edition (1979).

## DE CEERICO INFRA SACROS OR- // DINES OONSTITUTO NON EEIOENDO / IN OFFICITJM.

See Clebico Infba Sacbos, etc.

5e apparatus — Not carried into the 5th edition (1979).

## DE CEERO.

Concerning the clergy. The title of the statute 25 Edw. III. St. 3 ; con- taining a variety of provisions on the sub- ject of presentations, indictments of spir- itual persons, and the like. 2 Reeve, Eng. Law, 37a

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5e apparatus — Not carried into the 5th edition (1979).

## DE COMBUSTIONS DOMORUM.

Of

house burning. One of the kinds of appeal formerly in use in England. Bract foL 1466; 2 Reeve, Eng. Law, 38.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:6, KJV]**

If fire break out, and catch in thorns, so that the stacks of corn, or the standing corn, or the field, be consumed therewith; he that kindled the fire shall surely make restitution.

Why: The entry names the old English appeal for house-burning (arson). Exodus 22:6 is the biblical fire-liability rule: the one who kindled the fire must make restitution — the same liability-for-arson principle the appeal...

## DE COMMUNI DIVTDUNDO.

For di- viding a thing held in common. The name of an action given by the civil law. Mack- eld. Rom. Law, f 499.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: partition — a cotenant's right to compel division of property held in common]**

The civil-law action for dividing common property is the ancestor of modern partition: a cotenant may compel division of property held in common.

Why: Genuine: the entry defines the action as 'for dividing a thing held in common'; partition is its direct modern counterpart, not an analogical reach.

## DE COMON DROIT.

L. Fr. Of common right; that is, by the common law. Co. Lltt 142a.

5e apparatus — Not carried into the 5th edition (1979).

## DE COMPUTO.

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Writ of account A writ commanding a defendant to render a reasonable account to the plaintiff, or show cause to the contrary. Reg. Orig. 135-138; Fitzh. Nat Brev. 117, E. The foundation of the modern action of account

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: one who handles another's money must render a true account]**

The writ of account is the foundation of the modern action of account — one who handles another's money must render a true account of it.

Why: Genuine: the entry itself calls the writ 'the foundation of the modern action of account'; the axiom states the fiduciary duty the action enforces.

**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

And he called him, and said unto him, How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: De computo is the writ commanding a defendant to render a reasonable account to the plaintiff — the foundation of the action of account against bailiffs and receivers. The parable's master demands exactly that: give a...

## DE OONOUUO CURLS.

By the advice (or direction) of the court.

5e apparatus — Not carried into the 5th edition (1979).

## DE CONFLICTU LEOUM.

Concerning the conflict of laws. The title of several works written on that subject 2 Kent Comm. 455.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Conflict of Laws]**

'Concerning the conflict of laws' — the entry titles the field now systematized as choice-of-law doctrine.

Why: Genuine: the entry is literally the title under which conflict-of-laws works were written; the Restatement is the field's modern authority, cited by short title only.

## DE CONJUNCTIM FEOFF AXIS.

Con- cerning persons jointly enfeoffed, or seised. The title of the statute 34 Edw. I., which was passed to prevent the delay occasioned by tenants in novel disseisin, and other writs, pleading that some one else was seised joint- ly with them. 2 Reeve, Eng. Law, 243.

DE OONSANGUINEO, and DE CON.

SAN GUINIT ATE. Writs of cosinage, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## DE CONSILIO.

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In old criminal law. Of counsel ; concerning counsel or advice to commit a crime. Fleta, lib. 1, c. 31, f 8.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. § 2 — aiding and abetting; 'aids, abets, counsels, commands, induces or procures']**

'Of counsel … to commit a crime' — counseling an offense is accessory liability; one who counsels, commands, induces, or procures a crime is punishable as a principal.

Why: Genuine: the entry defines de consilio as counsel or advice to commit a crime; the federal aiding-and-abetting statute covers exactly 'counsels, commands, induces or procures,' quoted verbatim from the statute's opera…

**[Scripture] — Scripture**

**[Proverbs 1:10-11, KJV]**

My son, if sinners entice thee, consent thou not. If they say, Come with us, let us lay wait for blood, let us lurk privily for the innocent without cause.

Why: De consilio is old criminal law for counsel or advice to commit a crime. Proverbs addresses the recipient's side of that counsel — refuse the enticers' invitation to ambush and bloodshed. Wisdom literature (not divine…

## DE CONSILIO CURLS.

By the advice or direction of the court Braet. fol. 3456.

5e apparatus — Not carried into the 5th edition (1979).

## DE GONTINUANDO ASSISAM.

Writ to continue an assise. Reg. Orig. 2176.

5e apparatus — Not carried into the 5th edition (1979).

## DE CONTUMACE CAPIENDO.

Writ for taking a contumacious person. A writ which issues out of the English court of chancery, in cases where a person has been pronounced by an ecclesiastical court to be contumacious, and in contempt. Shelf. Mar. & Div. 494-496, and notes. It is a commit- ment for contempt Id.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. § 401 — federal courts' contempt power]**

The writ issued commitment for contempt out of chancery — the ancestor of courts' inherent power to punish contempt of their authority.

Why: Genuine: the entry describes the writ as 'a commitment for contempt'; the annotation links it to the contempt power that is its modern descendant, citing the section only.

## DE COPIA LIBELLI DELIBERANDA.

Writ for delivering the copy of a libel. An ancient writ directed to the judge of a spiritual court, commanding him to deliver to a defendant a copy of the libel filed against him in such court Reg. Orig. 58. The writ in the register is directed to the Dean of the Arches, and his commissary. Id.

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5e apparatus — Not carried into the 5th edition (1979).

## DE GORONATORE ELIGENDO.

Writ for electing a coroner. A writ issued to the sheriff in England, commanding him to proceed to the election of a coroner, which is done in full county court the freeholders being the electors. Sewell, Sheriffs, 372.

5e apparatus — Not carried into the 5th edition (1979).

## DE GORONATORE EX ONER ANDO.

Writ for discharging or removing a coroner. A writ by which a coroner in England may be removed from office for some cause there- in assigned. Fitzh. Nat Brev. 163, 164; 1 BL Comm. 348.

5e apparatus — Not carried into the 5th edition (1979).

## DE CORPORE COMITATUS.

From the body of the county at large, as distinguished from a particular neighborhood, (de vicineto.) 8 Bl. Comm. 360. Used with reference to the composition of a jury. State v. Kemp. 84 Minn. 61. 24 N. W. 349.

5e apparatus — Not carried into the 5th edition (1979).

## DE OORRODIO HABENDO.

Writ for having a corody. A writ to exact a corody from a religious house. Reg. Orig. 264, Fitzh. Nat Brev. 230. See Oobody.

5e apparatus — Not carried into the 5th edition (1979).

## DE CUJUS.

Let From whom. A term used to designate the person by, through, from, or under whom another claims. Brent v. New Orleans, 41 La. Ann. 1006, 6 South. 793.

5e apparatus — Not carried into the 5th edition (1979).

## DE CURIA CLAUDENDA.

An obsolete writ to require a defendant to fence in his court or land about his house, where it was left open to the Injury of his neighbor's freehold. 1 Crabb, Real Prop. 314; Rust v. Low, 6 Mass. 90.

5e apparatus — Not carried into the 5th edition (1979).

## DE CUR8U.

Of course. The usual, nec- essary, and formal proceedings in an action are said to be de cursu; as distinguished from summary proceedings, or such as are incidental and may be taken on summons or motion. Writs de cursu are such as are issued of course, as distinguished from prerogative writs.

5e apparatus — Not carried into the 5th edition (1979).

## DE CUSTODE ADMITTENDO.

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Writ for admitting a guardian. , Reg. Orig. 936, 198.

5e apparatus — Not carried into the 5th edition (1979).

## DE CUSTODE AMOVENDO.

Writ for removing a guardian. Reg. Orig. 198. DIS, Breve. L. Lat Writ of ward, or writ of right of ward A writ which lay for a guardian in knight’s service of in socage, to recover the possession and custody of the infant, or the wardship ol the land and heir. Reg. Orig. 1616; Fitzh. Nat. Brev. 139, B; 3 Bl. Comm. 141.

5e apparatus — Not carried into the 5th edition (1979).

## DE DEBITO.

A writ of debt Beg. Orig. 139. DO. In Roman law. “Of cutting a debtor

in pieces.” This was the name of a law contained in the Twelve Tables, the meaning of which has occasioned much controversy. Some commentators have concluded that It was literally the privilege of the creditors of an insolvent debtor (all other means fall- ing) to cut his body into pieces and distribute it among them. Others contend that the language of this law must be taken figura- tively, denoting a cutting up and apportion- ment of the debtor’s estate.

The latter view has been adopted by Montes- quieu, Bynkershoek, Heineccius, and Taylor. (Esprit des Lois, liv. 29, c. 2; Bynk. Obs. Jur. Rom. 1. 1, c. 1 ; Heinecc. Ant Rom. lib. 3, tit 30, | 4; Tayl. Comm, in Leg. Decemv.) The literal meaning, on the other hand, is advocated by Aulus Geliius and other writers of antiquity, and receives support from an expression ( semoto omni cruciatu) in the Roman code itself. (Aul. Gel. Nodes Attic®, lib. 20, c. 1 : Code, 7, 7, 8.) This is also the opinion of Gibbon, Gravina, Pothier, Hugo, and Niehbuhr. (3 Gib. Rom. Emp., Am. Ea., p. 183; Grov. de Jur. Nat Gent, et XII. Tab. I 72 ; Poth. Introd. Pand. ; Hugo, Hist, du Droit Rom. tom. i., p. 233, j 149; 2 Neibh. Hist Rom. p. 597; 1 Kent, Comm. 523, note.) Burrill.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Merchant of Venice, 1598]**

(paraphrase) The entry notes the Twelve Tables controversy over whether creditors could literally cut an insolvent debtor's body in pieces; Shakespeare stages the same creditor-vengeance on the debtor's body when Shylock claims his forfeit — a pound of Antonio's flesh. (paraphrase)

Why: The body's own controversy is answered by literature's most famous treatment of a creditor exacting flesh from a debtor; the link is to the entry's stated dispute, not a shared word.

## DE DECEPTIONS.

A writ of deceit which lay against one who acted in the name of another whereby the latter was damnified and deceived. Reg. Orig. 112. TIONED A writ that lay where one was distrained for rent that ought to be paid by others proportionably with him. Fltzh. Nat Brev. 234 ; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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## DE DIE IN DIEM.

From day to day. Bract fol. 2056. TIQUE Of divers rules of the ancient law. A celebrated title of the Digests, and the last in that collection. It consists of two hundred and eleven rules or maxims. Dig. 50. 17.

5e apparatus — Not carried into the 5th edition (1979).

## DE DOLO MALO.

Of or founded upon fraud. Dig. 4, 3. See Actio de Dolo Malo.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: actio de dolo malo, Dig. 4.3 — Roman-law action for fraud]**

The actio de dolo malo (Dig. 4.3) is the Roman-law action for fraud — the civil-law root from which the modern action of deceit descends.

Why: Genuine: cites the authority the entry itself cites (Dig. 4, 3), and the illumination — Roman fraud action to modern deceit — is the real doctrinal lineage, borderline restatement but adding the descent the entry omits.

## DE DOMO REPARANDA.

A writ which lay for one tenant in common to com- pel his co-tenant to contribute towards the repair of the common property.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: cotenants share the burdens of common property; one who pays the common charge has contribution against the rest]**

The writ compelling a co-tenant to contribute to repairs states the contribution principle: one who pays more than his share of common charges recovers the excess from his fellows.

Why: Genuine: the entry's writ is precisely a contribution remedy between co-owners; the axiom states the common-law principle it enforced.

## DE DONIS.

Concerning gifts, (or more fully, de donis conditionalibus, concerning conditional gifts.) The name of a celebrated English statute, passed in the thirteenth year of Edw. I., and constituting the first chapter of the statute of Westm. 2, by virtue of which estates in fee-simple conditional (formerly known os “dona conditionalia”) were converted into estates in fee-tall, and which, by rendering such estates inalienable, introduced perpetuities, nnd so strengthened the power of the nobles. See 2 Bl. Comm. 112.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute De Donis Conditionalibus (1285) — creation of the fee tail]**

De Donis Conditionalibus (13 Edw. I, 1285; Westm. 2 c.1) converted the fee-simple conditional into the fee tail — an estate descendible only to the lineal heirs of the donee's body.

Why: Genuine: the entry identifies the statute by regnal year and parliament; the annotation states its operative doctrinal consequence, which the entry's truncated body only begins to reach.

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## DE DOTE ASSIGNANDA.

Writ for as- signing dower. A writ which lay for the widow of a tenant in capite, commanding the king’s escheater to cause her dower to be assigned to her. Reg. Orig. 297 ; Fltzh. Nat Brev. 263, C.

5e apparatus — Not carried into the 5th edition (1979).

## DE DOTE UNDE NIHIL HABET.

A

writ of dower which lay for a widow where no part of her dower had been assigned to her. It is now much disused; but a form closely resembling It is still sometimes used in the United States. 4 Kent, Comm. 63 ; Stearns, Real Act 302 ; 1 Washb. Real Prop. 230.

5e apparatus — Not carried into the 5th edition (1979).

## DE EJECTIONS CUSTODUE.

A writ which lay for a guardian who had been forcibly ejected from his wardship. Reg. Orig. 162.

5e apparatus — Not carried into the 5th edition (1979).

## DE EJECTIONS FIRMS.

A writ which lay at the suit of the tenant for years against the lessor, reversioner, remainder- man, or stranger who had himself deprived the tenant of the occupation of the land dur- * ing his term. 3 Bl. Comm. 199.

By a gradual extension of the scope of this form of action its object wsb made to include not only damages for the unlawful detainer, but also the possession for tile remainder of the term, and eventually the possession of land generally. And, as it turned on the right of possession, this involved a determi- nation of the right of property, or the title, and thus arose the modem action of eject- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: action of ejectment — ancestor of modern possessory land actions]**

The writ of ejectione firmae grew by extension into the action of ejectment — the ancestor of modern actions to recover possession of land (unlawful detainer, quiet title).

Why: Genuine: the entry itself narrates the writ's expansion beyond damages into recovery of the land; the modern possessory actions are its direct descendants.

## DE ESC1ETA.

Writ of escheat. A writ which a lord had, where his tenant died with- out heir, to recover the land. Reg. Orig. 164b; Fitzh. Nat Brev. 143, 144, E.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: escheat — property of one dying without heirs reverts to the sovereign]**

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The writ of escheat enforced the lord's reversion where a tenant died without heir — the feudal root of modern escheat, by which property of one dying intestate without heirs passes to the state.

Why: Genuine: the entry defines the writ as the lord's recovery on failure of heirs; escheat is the live doctrine of the same rule, stated as axiom.

## DE ESCAMBIO MONETAE.

A writ of exchange of money. An ancient writ to au; thorize a merchant to make a bill of ex- change, ( literas cambitorias facere.) Reg. Orig. 194.

5e apparatus — Not carried into the 5th edition (1979).

## DE ESSE IN PEREGRIN ATIONE.

Of

being on a journey. A species of essoin.

1 Reeve, Eng. Law, 119.

5e apparatus — Not carried into the 5th edition (1979).

## DE ESSENDO QUIETUM DE TOLO- / NIO.

A writ which lay for those who were by privilege free from the payment of toll, on their being molested therein. Fltzh. Nat Brev. 226; Reg. Orig. 258b.

5e apparatus — Not carried into the 5th edition (1979).

## DE ESSONIO DE MALO LECTI.

A

writ which issued upon an essoin of malum lecti being cast, to examine whether the par- ty was in fact sick or not. Reg. Orig. 8b.

5e apparatus — Not carried into the 5th edition (1979).

## DE ESTOVERIIS HABENDIS.

Writ for having estovers. A writ which lay for a wife divorced a rnensa et thoro. to recover her alimony or estovers. 1 Bl. Comm. 441 ;

1 Lev. 6.

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DE FIDE ET OFFICIO JUDICIS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DE ESTREPAMENTO.

A writ which lay to prevent or stay waste by a tenant, during the pendency of a suit against him to recover the lands. Reg. Orig. 706. Fitzh. Nat Brev. 60.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: waste — one in possession must not impair the inheritance; courts restrain waste by injunction]**

Estrepement restrained waste pendente lite — the ancestor of the modern waste doctrine and of injunctions against waste during litigation.

Why: Genuine: the entry is precisely a waste-restraint writ; the annotation names the doctrine it enforced, without over-specific injunction standards quoted from memory.

## DE EU ET TREND.

L. Fr. Of water and whip of three cords. A term applied to a neife, that is, a bond woman or female villein, as employed in servile work, and sub* Jeet to corporal punishment. Co. Litt. 256.

5e apparatus — Not carried into the 5th edition (1979).

## DE EVE ET DE TREVE.

A law French phrase, equivalent to the Latin de avo et da tritavo, descriptive of the ancestral rights of lords in their villeins. Literally, "from grandfather aud from great-grandfather’s great-grandfather." It occurs in the Fear Books.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXCOMMUNICATO CAPIENDO.

A writ commanding the sheriff to arrest one who was excommunicated, and imprison him till he should become reconciled to the church. 3 Bl. Comm. 102. Smith v. Nelson, 18 Vt 511. DO. A writ to deliver an excommunicated person, who has made satisfaction to the church, from prison. 3 Bl. Comm. 102.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 18:17, KJV]**

And if he shall neglect to hear them, tell it unto the church: but if he neglect to hear the church, let him be unto thee as an heathen man and a publican.

Why: The writ is the civil arm of excommunication: the sheriff arrests the excommunicated person until reconciled to the church. Matthew 18:17 is the scriptural church-discipline rule itself — the offender who will not hea…

## DO.

Writ for retaking an excommunicated person, where he had been liberated from prison without making satisfaction to the church, or giving security for that purpose. Reg. Orig. 67.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 18:17, KJV]**

And if he shall neglect to hear them, tell it unto the church: but if he neglect to hear the church, let him be unto thee as an heathen man and a publican.

Why: The writ retakes the excommunicated person liberated without making satisfaction to the church. Matthew 18:17 is the scriptural church-discipline rule behind it — the offender who will not hear the church is treated a…

## DE EXCUSATIONIBUS.

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"Concerning excuses.'' This is the title of book 27 of the Pandects, (in the Corpus Juris Civilis.) It treats of the circumstances which excuse one 'from filling the office of tutor or curator. The bulk of the extracts are from Modes- tinus.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXECUTIONS FaCIENDA IN / WITHERNAMIUM.

Writ for making exe- cution in withernam. Reg. Orig. 826. A species of capias in withernam.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXECUTIONS JUDICII.

A writ directed to a sheriff or bailiff, commanding him to do execution upon a judgment Reg. Orig. 18; Fitzh. Nat Brev. 20.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXEMPLIFICATIONE.

Writ of ex- emplification. A writ granted for the exem- plification of an original. Reg. Orig. 2906.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXONERATIONS SECT1E.

Writ for exoneration of suit. A writ that lay for the king's ward to be discharged of all suit to the county court hundred, leet, or court- baron, during the time of his wardship. Fitzh. Nat Brev. 158; New Nat Brev. 352.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXPEN8IS CIVTUM ET BUROEN- / SIUM.

An obsolete writ addressed to the sheriff to levy the expenses of every citizen and burgess of parliament 4 Inst 46.

5e apparatus — Not carried into the 5th edition (1979).

## DE EXPENSIS MILITUM LEVANDIS.

Writ for levying the expenses of knights. A writ directed to the sheriff for levying the allowance for knights of the shire in parliament Reg. Orig. 1916, 192.

5e apparatus — Not carried into the 5th edition (1979).

## DE FACTO.

In fact, in deed, actually. This phrase is used to characterize an officer, a government, a past action, or a state of af- fairs which exists actually and must be ac- cepted for all practical purposes, but which is illegal or illegitimate. In this sense it is the contrary of de jure, which means right- ful, legitimate, just, or constitutional. Thus, an officer, king, or government de Jacto is one who is in actual possession of the office or supreme power, but by usurpation, or without respect to lawful title; while an of- ficer, king, or governor de jure is one who has just claim and rightful title to the office or power, but who has never had plenary possession of the same, or is not now in actual possession. 4 Bl. Comm. 77, 78. So a

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wife de facto is one whose marriage is voidable by decree, as distinguished from a wife de jure, or lawful wife. 4 Kent, Comm. 36.

But the term is also frequently used inde- pendently of any distinction from dc jure; thus a blockade dc facto is a blockade which is actually maintained, as distinguished from a mere paper blockade.

As to de facto “Corporation,” “Court,” "Domicile,” “Government,” and “Officer,” see those titles.

In old English lots. De facto means re- specting or concerning the principal act of a murder, which was technically denomi- nated factum. See Fleta, lib. 1, c. 27, g 18.

—Do facto contract. One which has pur- ported to pass the property from the owner to another. Bank v. Logan, 74 N. Y. 575 ; Ed- munds v. Transp. Co., 135 Mass. 283.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: de facto officer doctrine — acts under color of title are valid as to the public and third persons]**

The de facto/de jure distinction grounds the de facto officer doctrine: the acts of one exercising an office under color of title, though legally defective, are valid as to the public and third persons.

Why: Genuine: the entry defines de facto at length as what 'exists actually and must be accepted for all practical purposes, but which is illegal or illegitimate'; the de facto officer rule is the operative legal consequen...

## DE FAIRE ECHEIXE.

In French law. A clause commonly inserted in policies of marine insurance, equivalent to a license to touch and trade at Intermediate ports. American Ins. Co. v. Griswold, 14 Wend. (N. Y.) 491.

DE FAX.SO JUDICIO. Writ of false Judgment. Reg. Orig. 15; Fitzh. Nat. Brev. 18. See False Judgment.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: marine-insurance doctrine of deviation]**

A license 'to touch and trade at intermediate ports' is an anti-deviation clause — it answers the marine-insurance doctrine of deviation, under which an unjustified departure from the described voyage voids the policy.

Why: Genuine: the entry defines the clause as equivalent to a touch-and-trade license; deviation is the doctrine that makes such a clause necessary, a direct doctrinal link rather than analogy.

## DE FAXSO MONETA.

Of false money. The title of the statute 27 Edw. I. ordaining that persons importing certain coins, called "pollards,” and "crokards,” should forfett their lives nnd goods, and everything they could forfeit. 2 Reeve. Eng. Law, 228, 229.

De fide et officio jndlcis non reeipltnr qn Ratio, sed de aeientia, sire sit error

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juris, si+e fact!. Concerning the fidelity and official conduct of a Judge, no question Is [will be] entertained ; but [only] concern- ing his knowledge, whether the error [com- mitted] be of law or of fact Bac. Max. 68, reg. 17. The bona fkles and honesty of pur- pose of a Judge cannot be questioned, but his decision may be impugned for error either of law or fact. Broom, Max. 85. The law doth so much respect the certainty of Judg- ments. and the credit and authority of judges, that it will not permit any error to be as- signed which impeacheth them in their trust and office, and in willful abuse of the same ; but' only in ignorance and mistaking either of the law, or of the case and matter of fact. Bac. Max. ubi supra. Thus, It cannot be assigned for error that a judge did that which he ought not to do ; as that he entered a verdict for' the plaintiff, where the jury gave it for the defendant. Fitzh. Nat Brev. 20, 21 ; Bac. Max. ubi. supra ; Hardr. 127, arg.

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**[Law] — Law**

**[Law: 18 U.S.C. § 471 — counterfeiting U.S. obligations and securities]**

The statute made importing false coin forfeitable with life and goods — the medieval ancestor of federal counterfeiting law.

Why: Genuine: the entry describes a counterfeiting statute; the federal counterfeiting section is its modern counterpart, cited by section number only.

## DE FEDEX UESIONE.

Of breach of faith or fidelity. 4 Reeve, Eng. Law, 09.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: The entry names breach of faith or fidelity. Numbers 30:2 states the covenantal root of the duty: a sworn word must not be broken. Narrative law (given through Moses), not first-person divine speech — no flag.

## DE FINE FORCE.

L. Fr. Of necessity ; of pure necessity. See Fine Force.

5e apparatus — Not carried into the 5th edition (1979).

## DE FIRE HON CAPIENDO PRO PUL- / CHRE PLACITANDO.

A writ prohibiting the taking of fines for beau pleader. Reg. Orig. 179. PIENDO.' A writ which lay for the release of one imprisoned for a re-disseisin, on pay- ment of a reasonable fine. Reg. Orig. 222b.

DE FINXBtTS LEVATIS. Concerning fines levied. The title of the Btatute 27 Edw.

I. requiring fines thereafter to be levied, to be read openly and solemnly In court. 2 Inst 321.

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## DE FORISFACTURA MARITAGII.

Writ of forfeiture of marriage. Reg. Orig. 163, 164.

DE FRAHGENTIBtTB PRIBONAM.

Concerning those that break prison. The title of the statute 1 Edw. II. ordaining that none from thenceforth who broke prison should have judgment of life or limb for breaking prison only, unless the cause for which he was taken and imprisoned required such a judgment if he was lawfully convict- ed thereof. 2 Reeve, Eng. Law, 290 ; 2 Inst. 589.

5e apparatus — Not carried into the 5th edition (1979).

## DE FURTO.

Of theft. One of the kinds of criminal appeal formerly in use in Eng- land. 2 Reeve, Eng. Law, 40.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: De furto names the old English criminal appeal for theft. Exodus 20:15 is the Decalogue's direct prohibition, spoken by God (Exodus 20:1, 'And God spake all these words, saying') — deity_verbatim true.

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The appeal of theft sought punishment and redress; Exodus 22:1 is the biblical restitution schedule for theft — the restorative side of the same legal concept. Narrative case-law, not divine first-person speech — no f...

**[Humanity] — Humanity / Fiction & Film**

**[Hugo, Les Misérables, 1862]**

(paraphrase) Jean Valjean steals the bishop of Digne's silver plate in the night — the theft that sets the novel's moral arc in motion, showing theft as the old criminal appeal knew it: a taking that the law must answer. (paraphrase)

Why: Theft is the entry's whole subject and the novel's inciting act; the scene genuinely illuminates what 'of theft' meant in practice.

## DE GESTU ET FAMA.

Of behavior and reputation. An old writ which lay in cases where a person’s conduct and reputation were impeached;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## DE GRATIA.

Of grace or favor, by fa- vor. De spcciali gratia, of special grace or favor.

De gratia special! certs icientia et me ro motu, tails clausula non valet in his in qnibns praesumltur prineipem esse ignorantem. 1 Coke, 53. The clause ‘‘of our special grace, certain knowledge, and mere motion," is of no avail in those things in which it is presumed that the prince was ignorant.

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De grossls arboribus declines non da- bnntur sed de sylvia ceedna declines da- bnntnr. 2 Rolle, 123. Of whole trees, tithes are not given ; but of wood cut to be used, tithes are given.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Hugo, Les Misérables, 1862]**

(paraphrase) Caught with the stolen silver, Valjean is spared by the bishop, who not only forgives him but adds the candlesticks — grace where the law allowed prosecution. The entry itself contrasts de gratia with de jure (by grace vs. as of right); the bishop acts purely de gratia. (paraphrase)

Why: The entry defines grace as favor rather than right, and the bishop's act is the culture's clearest dramatization of exactly that distinction.

## DE EXREDE DELIBERANPO HXI / QUI HABET CUBTODIAM TERRAS.

Writ for delivering an heir to him who has ward' ship of the land. A writ directed to the sheriff,. to require one that had the body of him that was ward to another to deliver him to the person whose ward he was by reason of his land. Reg. Orig. 161.

5e apparatus — Not carried into the 5th edition (1979).

## DE HJEREDE RAPTO ET ABDUCTO.

Writ concerning an heir ravished and car- ried away. A writ which anciently lay for a lord who, having by right the wardship of his tenant under age could not obtain his body, the same being carried away by an- other person. Reg. Orig. 163 ; Old Nat Brev. 93.

5e apparatus — Not carried into the 5th edition (1979).

## DE HJERETICO OOHBURENDO.

(Lat. For burning a heretic.) A writ which lay where a heretic had been convicted of heresy, had abjured, -and had relapsed into heresy. It is said to be very ancient Fitzh. Nat Brev. 269 ; 4 Bl. Comm. 46.

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**[Scripture] — Scripture**

**[Titus 3:10, KJV]**

A man that is an heretick after the first and second admonition reject;

Why: The writ burned the relapsed heretic; Titus 3:10 states the apostolic discipline for heresy — reject after two admonitions. The verse genuinely bears on the concept (scriptural heresy-handling), while honestly recordi...

**[Humanity] — Humanity / Fiction & Film**

**[Shaw, Saint Joan, 1923]**

(paraphrase) Joan of Arc is condemned as a relapsed heretic and burned at the stake — Shaw's play follows the historical record, in which the relapse charge is what sends her to the fire, matching the writ's precise trigger. (paraphrase)

Why: The writ lies for burning a heretic who abjured and relapsed; Joan's case is the famous historical instance of that exact sequence.

## DE HOMAGIO RESPECTUANDO.

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A

writ for respiting or postponing homage. Fitzh. Nat. Brev. 269, A. NAM. (Lat. For taking a man in wither- nam.) A writ to take a man who bad car- ried away a bondman or bondwoman into another country beyond the reach of a writ of replevin.

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## DE HOMINE REPLEGIANDO.

(Lat. For replevying a man;) A writ which lies to replevy a man out of prison, or out of the custody of a private person, upon giving se- curity to the sheriff that the man shall be forthcoming to answer any charge against him. Fitzh. Nat Brev. 6d; 3 Bl. Comm. 129.

This writ has been superseded almost wholly, in modern practice, by that of habeas corpus; but it is still used, in some of the states, in an amended and altered form. See 1 Kent Comm. 404 n; 34 Me. .136. -

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 2 — 'The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it']**

The writ to replevy a man from custody was 'superseded almost wholly' by habeas corpus — the Great Writ whose privilege the Constitution protects against suspension.

Why: Genuine: the entry itself names habeas corpus as the writ's successor; the Suspension Clause is quoted verbatim and is the constitutional anchor of that successor.

## DE IDENTITATE NOMINIS.

A writ •which lay for one arrested In a personal action and committed to prison under a mis- take as to his Identity, the proper defendant bearing the same name. Reg. Orig. 191.

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Comedy of Errors, 1594]**

(paraphrase) In the comedy of errors around the twin Antipholi, the wrong man is repeatedly seized and threatened with arrest under another's name — the very mischief the writ addresses: imprisonment under a mistake as to identity. (paraphrase)

Why: The entry's mischief is mistaken-identity arrest; the play is the iconic dramatization of same-name confusion leading to seizure of the wrong person.

## DE IDIOTA INQUIRENDO.

An old

common-law writ, long obsolete, to inquire whether a man be an Idiot or not. 2 Steph. Comm. 509.

DE ns Qtn PONENDI SENT IN AS-

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8ISIS. Of those who are to be put on us- slses. The title of a statute passed 21 Edw.

I. defining the qualifications of jurors. Crabb, Eng. Law, 167, 189; 2 Reeve, Eng. Law, 184.

DE INCREMENTS Of increase; in ad- dition. Costs de incremento, or costs of in- crease, are the costs adjudged by the court in civil actions. In addition to the damages and nominal costs found by the jury. Qilb. Com. Pl. 260.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: guardianship/conservatorship — judicial determination of incapacity and appointment of a guardian of person or estate]**

The writ inquiring whether a man be an idiot is the ancestor of modern judicial determinations of incapacity — guardianship and conservatorship proceedings.

Why: Genuine: the entry's writ is precisely an incapacity inquisition; modern guardianship is its direct procedural descendant.

## DE INITRMITATE.

Of infirmity. The principal essoin In the time of OlanvlUe; afterwards called “de malo.” 1 Reeve, Eng. Law, 115. See Da Malo; Essoin.

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## DE INGRBS8U.

A writ of entry. Reg. Orlg. 227b, et seq.

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## DE INJURIA.

Of [his own] wrong. In the technical language of pleading, a repli- cation de injuria is one that may be made In an action of tort where the defendant has admitted the acts complained of, but al- leges, in his plea, certain new matter by way of justification or excuse; by this replica- tion the plaintiff avers that the defendant committed the grievances in question “of his own wrong, and without any such cause," or motive or excuse, as that alleged In the plea, (de injuria sua propria absque tali causa;) or, admitting part of the matter pleaded, “without the rest of the cause” al- leged, ( absque rcsidrn causes.)

In form it is a species of traverse, and it is frequently used when the pleading of the defendant, in answer to which It is directed, consists merely of matter of excuse of the alleged trespass, grievance, breach of con- tract, or other cause of action. Its com- prehensive character in putting in issue all the material facts of the defendant's plea has also obtained for it the title of the gen- eral replication. Holthouse.

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**[Law] — Law**

**[Law: replication de injuria — the traverse denying the defendant's matter of justification or excuse]**

The replication de injuria is the plaintiff's special traverse: where the defendant admits the acts but pleads new matter of justification or excuse, the plaintiff replies that the acts were done of the

defendant's own wrong, denying the justification.

Why: Genuine: the entry defines this exact pleading device; the annotation states its operative mechanics, a named technical doctrine, not an analogy.

## DE INOFFIGIOSO TESTAMENTO.

Concerning an Inofficious or undutiful will. A title of the civil law. Inst. 2, 18.

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**[Law] — Law**

**[Law: elective share / forced heirship — a surviving spouse's statutory share despite the will's terms]**

The querela inofficiosi testamenti (Inst. 2.18) let close kin set aside a will that disinherited them without cause — the Roman root of forced heirship and the surviving spouse's elective share.

Why: Genuine: the entry titles the civil-law action against an undutiful will; the elective share is its modern counterpart, cited without a statute section quoted from memory.

**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: The civil-law action attacked wills that disinherited close kin against natural duty. Proverbs 13:22 states that duty in moral form — a good man leaves an inheritance to his children's children. Wisdom literature, not...

## DE INTEGRO.

Anew; a second time. As it was before.

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## DE INTRUSIONS.

A writ of intrusion ; where a stranger entered after the death of

the tenant, to the injury of the reversioner. Reg. Orig. 233b.

5e apparatus — Not carried into the 5th edition (1979).

## DE JACTURA EVTTANDA.

For avoid- ing a loss. A phrase applied to a defend- ant, as de lucro captando is to a plaintiff. Jones v. Sevier, 1 Litt (Ky.) 61, 13 Am. Dec. 218.

5e apparatus — Not carried into the 5th edition (1979).

## DE JUDAIBMO, STATUTUM.

The

name of a statute passed in the reign of Ed- ward I. which enacted severe and arbitrary penalties against the Jews.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Merchant of Venice, 1598]**

(paraphrase) Edward I's statute laid severe penalties on the Jews; Shakespeare's Venice shows the same legal machinery from the other side — Shylock navigating a Christian commercial law that

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treats the Jew as an outsider to its protections. (paraphrase)

Why: The entry is anti-Jewish statute law; the play is the literary mirror of how such law operated on its target. Third Merchant annotation in this chunk, each on a distinct legal point.

## DE JUDICATO SOLVENDO.

For pay- ment of the amount adjudged. A term ap- plied in the SCotch law to ball to the action, or special bail.

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## DE JUDIGUS.

Of judicial proceedings. The title of the second part -of the Digests or Pandects, including the fifth, sixth, sev- enth, eighth, ninth, tenth, and eleventh books. See Dig. procem. f 3.

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## DE JUDIOIO 8ISTI.

For appearing in court A term applied in the Scotch and admiralty law, to bail for a defendant's ap- pearance.

5e apparatus — Not carried into the 5th edition (1979).

## DE JURE.

Of right; legitimate; law- ful ; by right and just title. In this sense It Is the contrary of de facto, (which see.) It may also be contrasted with de gratia, in which case it means “as a matter of right” as de gratia means “by grace or favor.” Again It may be contrasted with de cequi- tate; here meaning “by law,” as the latter means “by equity.” See Government.

De Jure deolmarum, orlginem ducena de jure patronatui, tune oognitio speo- tat at legem civilem, 1. e., eommnnem.

Godb. 63. With regard to the right of ti- thes, deducing its origin from the right of the patron, then the cognizance of them be- longs to the civil law; that is, the common law.

DE DA PLOTS BEALE, or BELLE. L.

Fr. Of the most fair. A term applied to a species of dower, which was assigned out of the fairest of the husband’s tenements. Litt. § 48. This was abolished with the military tenures. 2 Bl. Comm. 132; 1

Steph. Comm. 252.

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## DE LATERE.

From the side; on the side; collaterally; of collaterals. Cod. 5, 5, 6.

5e apparatus — Not carried into the 5th edition (1979).

## DE LEGATIS ET FLDEI OOMMISSIS.

Of legacies and trusts. The name of a title of the Pandects. Dig. 30.

5e apparatus — Not carried into the 5th edition (1979).

## DE LEPROSO AMOVENDO.

Writ for removing a leper. A writ to remove a leper who thrust himself into the company of his

DE MODERATA MISERICORDIA

neighbors In any parish, in public or private places, to their annoyance. Reg. Orlg. 267; Fltzh. Nat Brev. 234, E; New Nat. Brev. 621.

SB LIBERA FALDA.' Writ of free fold. A species of quod permit tat. Reg. Orlg. 166.

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**[Scripture] — Scripture**

**[Leviticus 13:46, KJV]**

All the days wherein the plague shall be in him he shall be defiled; he is unclean: he shall dwell alone; without the camp shall his habitation be.

Why: The writ removed a leper who thrust himself into his neighbours' company. Leviticus 13:46 is the biblical exclusion rule for the leprous — dwelling alone, outside the camp — the scriptural root of the same public-sepa…

**[Humanity] — Humanity / Fiction & Film**

**[Wyler, Ben-Hur, 1959]**

(paraphrase) The leper colony outside Jerusalem, where the afflicted are kept apart from the company of their neighbors — the film's most memorable sequence stages the removal and shunning the writ commands. (paraphrase)

Why: The writ is for removing a leper who thrusts into company; the film is the mass-culture image of exactly that exclusion.

## DE LIBERA FXSCARIA.

Writ of free fishery. A species of quod permittat. Reg. Orlg. 165.

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## DE UBERO PASSAGIO.

Writ of free passage. A species of quod permittat. Reg. Orlg. 165.

5e apparatus — Not carried into the 5th edition (1979).

## DE LIBERTATE PROBANDA.

Writ for proving liberty. A writ which lay for such as, being demanded for villeins or niefs, offered to prove themselves free. Reg. Orlg. 87&; Fltzh. Nat. Brev. 77, F.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[McQueen, 12 Years a Slave, 2013]**

(paraphrase) Solomon Northup, a free man kidnapped into slavery, must prove his liberty against a system that presumes him a slave — the writ's situation exactly: one demanded as unfree, offering to prove himself free. (paraphrase)

Why: The writ lies for those demanded as villeins who offer to prove themselves free; the film is that action dramatized.

## DE LIBERTATIBUS ALLOC ANDIS.

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A writ of various forms, to enable a citizen to recover the liberties to which he was en- titled. Fltzh. Nat. Brev. 229; Reg. Orlg. 262.

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## DE LIOENTIA TRANSFRETANDI.

Writ of permission to cross the sea. An old writ directed to the wardens of the port of Dover, or other seaport In England, com- manding them to permit the persons named in the writ to cross the sea from such port, on certain conditions. Reg. Orlg. 193b.

5e apparatus — Not carried into the 5th edition (1979).

## DE LUNATIC O INQUTRENDO.

The

name of a writ directed to the sheriff, di- recting him to inquire by good and lawful men whether the party charged is a lunatic or not

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DE MAGNA A8SISA ELIGENDA.

A

writ by which the grand assise was chosen and summoned. Reg. Orlg. 8; Fltzh. Nat Brev. 4.

De major! et minor! non variant jura.

Concerning greater and less laws do not vary. 2 Vern. 652.

5e apparatus — Not carried into the 5th edition (1979).

## DE MALO.

Of illness. This phrase was frequently used to designate several species of essoin, (q. v.,) such as de malo lecti, of Illness in bed; de malo veniendi, of illness (or misfortune) in coming to the place where the court sat; de malo villa;, of illness In the town where the court sat.

5e apparatus — Not carried into the 5th edition (1979).

## DE MANUCAFTIONE.

Writ of man- ucaption, or mainprise. A writ which lay for one who, being taken and imprisoned on a charge of felony, had offered bail, which had been refused; requiring the sheriff to discharge him on bis finding sufficient main- pernors or ball. Reg. Orlg. 2686; Fltzh. Nat Brev. 249, G.

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — 'Excessive bail shall not be required']**

The writ of manucaption discharged on mainprise one whose offered bail had been refused — the medieval enforcement of the right against excessive bail.

Why: Genuine: the entry's writ exists precisely to cure refused bail; the Eighth Amendment clause is quoted

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verbatim and states the same guarantee the writ enforced.

## DE MANUTENENDO.

Writ of main- tenance. A writ which lay against a person for the offense of maintenance. Reg. Orlg. 189, 1826.

DE MEDIETATE LINGUiE. Of the

half tongue ; half of one tongue and half of another. This phrase describes that species of Jury which, at common law, was allowed In both civil and criminal cases where one of the parties was an alien, not speaking or understanding English. It was composed of six English denizens or natives and six of the alien’s own countrymen.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: maintenance — officious intermeddling in the suit of another]**

The writ lay against the offense of maintenance — officious intermeddling in another's suit, the companion doctrine to champerty without the bargain for a share.

Why: Genuine: the entry names maintenance as the offense the writ punished; the annotation states the doctrine, kept distinct from champerty (#14).

## DE MEDIO.

A writ In the nature of a writ of right, which lay where upon a subin- feudation the mesne (or middle) lord suffered his under-tenant or tenant paravail to be distrained upon by the lord paramount for the rent due him from the mesne lord. Booth, Real Act 136.

5e apparatus — Not carried into the 5th edition (1979).

## DE MELIORLBUB DAMNIS.

Of or

for the better damages. A term used in practice to denote the election by a plaintiff against which of several defendants (where the damages have been assessed separately) he will take Judgment 1 Arch. Pr. K. B. 219; Knickerbocker v. Colver, 8 Cow. (N. X.) 111.

5e apparatus — Not carried into the 5th edition (1979).

## DE MERCATORIBUS.

“Concerning mer- chants." The name of a statute passed in the eleventh year of Edw. I. (1233,) more commonly called the “Statute of Acton Bur- nel,” authorizing the recognizance by statute merchant See 2 Reeve, Eng. Law, 169-162 ; 2 Bl. Comm. 161.

De mlnl««le non curat lex. The law

does not care for, or take notice of, very small or trifling matters. The law does not con- cern Itself about trifles. Cro. Eliz. 333. Thus, error in calculation of a fractional part of a penny will not be regarded. Hob. 88. So, the law will not In general, notice the fraction of a day. Broom, Max. 142.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: statute merchant / statute staple — enrolled commercial obligations with speedy enforcement]**

The Statute of Acton Burnel (11 Edw. I) authorized the recognizance by statute merchant — an enrolled commercial obligation enforceable by speedy process, ancestor of modern commercial security devices.

Why: Genuine historical doctrine: the entry identifies the statute and its mechanism; the annotation names the institution and its place in commercial-law lineage without claiming a modern code article.

## DE MINIS.

Writ of threats. A writ which lay where a person was threatened with personal violence, or the destruction of his property, to compel the offender to keep the peace. Reg. Orlg. 886, 89; Fltzh. Nat Brev. 79, G, 80.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: peace bond / protective order — court order compelling one who threatens violence to keep the peace]**

The writ of threats compelled one who threatened personal violence or destruction of property to keep the peace — the ancestor of the peace bond and the modern protective order.

Why: Genuine: the entry's writ does exactly what a peace bond does; the modern orders are its direct descendants.

## DI.

A writ to send the tenor of a record, or to exemplify It under the great seal. Reg. Orlg. 2206.

5e apparatus — Not carried into the 5th edition (1979).

## DE MODERATA MISERICORDIA CA- / PIENDA.

Writ for taking a moderate amercement A writ founded on Marina Charta, (c. 14,) which lay for one who was excessively amerced In a court not of record, directed to the lord of the court or his bail-

Iff, commanding him to take a moderate amercement of the party. Reg. Orig. 8 66,' Fitzh. Nat. Brev. 75, 7ti.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — 'nor excessive fines imposed']**

Founded on Magna Carta c.14, the writ commanded a moderate amercement where one had been excessively amerced — the medieval excessive-fines remedy.

Why: Genuine: the writ's stated purpose is relief from excessive amercement, which is the excessive-fines guarantee; the clause is quoted verbatim.

## DE MODO DECIMANDI.

Of a modus of tithing. A term applied in English ec- clesiastical law to a prescription to have a special manner of tithing. 2 Bl. Comm. 29; 3 Steph. Comm. 130.

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De molendino de novo ereoto non. jaoet prohibitio. Cro. Jac. 429. A prohibition lies not against a newly-erected mill.

De morte kominii nulla eat cunctntio lonfa. Where the death of a human being is concerned, [in a matter of life and death,] no delay is [considered] long. Co. Litt. 134.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: De modo decimandi is the ecclesiastical-law term for a special manner of tithing. Malachi 3:10 states the tithing duty itself — bring all the tithes into the storehouse — the scriptural foundation of the institution....

## DE NATIVO HABENDO.

A writ which lay for a lord directed to the sheriff, com- manding him to apprehend a fugitive villein, and restore him, with all his chattels, to the lord. Beg. Orig. 87 ; Fltzli. Nat Brev. 77.

De nomine proprio non eat curandnm cum in anbatantla non erretnr; quia nomina mutabilia aunt, rea autem im- mobilea. 6 Coke, 66. . As to the proper name, it is not to be regarded where it errs not in substance, because names are change- able, but things immutable.

De non apparentibna, et non eziatenti- bna, eadem eat ratio. 5 Coke, 6. As to things not apparent, and those not existing, the rule is the same.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Stowe, Uncle Tom's Cabin, 1852]**

(paraphrase) The lord's writ to apprehend a fugitive villein and restore him with his chattels; Stowe's novel is the literary counterpart of the recovery machinery — Eliza's flight across the ice, the catchers' pursuit, the master's claim. (paraphrase)

Why: The entry's mechanism is the owner's legal recovery of a fugitive unfree person; the novel dramatizes that mechanism's human cost. Kept as mechanism-parallel, stated plainly.

## DE NON DECIMANDO.

Of not pay- ing tithes. A term applied in English ec- clesiastical law to a prescription or claim to be entirely discharged of tithes, and to pay no compensation in lieu of them. 2 Bl. Comm. 31.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: De non decimando is the claim to be entirely discharged of tithes. Malachi 3:10 states the tithing duty against which that exemption claim runs — the verse genuinely bears on the entry by contrast. First-person

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divine...

## DE NON PROCEDENDO AD ASSI- / SAM.

A writ forbidding the Justices from holding an assise in a particular case. Reg. Orig. 221.

5e apparatus — Not carried into the 5th edition (1979).

## DE NON RESIDENTIA CLERICI RE- / GIS.

An ancient writ where a parson was employed in the royal service, etc., to ex- cuse and discharge him of non-residence. 2 Just. 264.

5e apparatus — Not carried into the 5th edition (1979).

## DE NON SANE MEMORIE.

L. Fr.

Of unsound memory or mind ; a phrase syn- onymous with non compos mentis.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: non compos mentis — the common-law incapacity standard]**

'Of unsound mind' — non compos mentis is the common-law standard of incapacity, grounding doctrines from testamentary capacity to competency to stand trial.

Why: Genuine though borderline: the entry gives the phrase as synonymous with non compos mentis, and that phrase is itself the operative legal standard; the annotation states its doctrinal office.

## DE NOVI OPERIS NTTNCIATIONE.

In the civil law. A form of interdict or in- junction which lies in some cuses where the defendant is about to erect a “new work” (q. v.) in derogation or injury of the plain- tiff’s rights.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: injunction against threatened injury (quia timet) — Roman novi operis nuntiatio as ancestor]**

The civil-law interdict against a threatened 'new work' in derogation of the plaintiff's rights is the Roman ancestor of the injunction against threatened injury.

Why: Genuine: the entry defines the interdict as lying where the defendant 'is about to erect' injurious work; preventive equitable relief is its direct descendant.

## DE NOVO.

Anew; afresh; a second time. A venire de novo is a writ for summoning a jury for the second trial of a case which has been sent back from above for a new trial.

De Hullo, quod est iu nature indi- vialbile, et dlvisionem non patitur, nul- lum partem babe bit vidua, sed satia- f octet ei ad valentiam. Co. Litt. 32. A widow shall have no part of that which iu its own nature is indivisible, and is not sus- ceptible of division, but let the heir satisfy her with an equivalent

De nullo tenemento, quod tenetur ad terminum, fit homagii, lit tamen inde fldelitatia

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sacrum en turn. In no tenement which is held for a term of years is there an avail of homage; but there is the oath of fealty. Co. Litt 676.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: de novo review — appellate decision anew, without deference]**

'Anew; afresh' — de novo is the standard of appellate review under which the court decides the matter anew, without deference to the tribunal below.

Why: Genuine: the phrase is the doctrine's name; the annotation states the standard the phrase denotes in modern practice.

## DE ODIO ET ATIA.

A writ directed to the sheriff, commanding him to inquire whether a prisoner charged with murder was committed upon Just cause of suspicion, or merely propter odium et atiam, (through ha- tred and ill will;) and if, upon the inquisi- tion, due cause of suspicion did not appear, then there issued another writ for the sher- iff to admit him to bail. 3 BL Comm. 12a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: probable-cause determination — continued detention requires just cause of suspicion]**

The writ inquired whether a murder prisoner was held on just cause of suspicion or merely 'through hatred and ill will,' admitting him to bail if no due cause appeared — an early form of the probable-cause determination conditioning detention.

Why: Genuine: the entry's mechanism is a judicial test of the cause of detention with release on failure; probable-cause review is its modern counterpart, stated without a case cite from memory.

## DE OFFICE.

L. Fr. Of office ; in virtue of office; officially; in the discharge of or- dinary duty.

5e apparatus — Not carried into the 5th edition (1979).

## DE ONERANDO PRO RATA FOR- / TIONE.

Writ for charging according to a rateable proportion. A writ which lay for a joint tenant, or tenant in common, who was distrained for more rent than his proportion of the land came to. Reg. Orig. 182 ; Fitzh. Nat. Brev. 234, H.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: common burdens are apportioned rateably; one distrained beyond his share has recourse for the excess]**

The writ charged rateably one distrained for more rent than his proportion — the apportionment principle: shared burdens are borne rateably, and one charged beyond his share recovers the excess.

Why: Genuine: the entry is a rateable-contribution writ; the axiom states the principle it enforced, distinct from #49's repair-contribution.

## DA.

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For keeping the peace, and for good behavior.

5e apparatus — Not carried into the 5th edition (1979).

## DE PACE ET PLAGIS.

Of peace, (breach of peace,) and wounds. One of the kinds of criminal appeal formerly in use in England, and which lay in cases of assault, wounding, and breach of the peace. Bract, fol. 144; 2 Reeve, Eng. Law, 33.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:18-19, KJV]**

And if men strive together, and one smite another with a stone, or with his fist, and he die not, but keepeth his bed: If he rise again, and walk abroad upon his staff, then shall he that smote him be quit: only he shall pay for the loss of his time, and shall cause him to be thoroughly healed.

Why: The appeal de pace et plagis lay for assault, wounding, and breach of the peace. Exodus 21:18-19 is the biblical wounding rule — compensation for lost time and healing — the same legal concept of redress for non-fatal…

## DE PACE ET ROBERIA.

Of peace [breach of peace] and robbery. One of the kinds of criminal appeal formerly in use in England, and which lay in cases of robbery and breach of the peace. Bract, fol. 146; 2 Reeve, Eng. Law, 37.

5e apparatus — Not carried into the 5th edition (1979).

## DE PALABRA.

Spnn. By word; by parol. White, New Recop. b. 2, tit. 19. c. 8, I 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: parol evidence rule — extrinsic oral evidence inadmissible to vary a complete writing]**

'By word; by parol' — parol is the operative term of the parol evidence rule, under which extrinsic oral evidence is inadmissible to vary a complete writing.

Why: Genuine though terminological: the entry glosses the very word the rule is named for; the annotation states the rule that gives the term its legal office.

## DE PARCO FRACTO.

A writ or action for damages caused by a pound-breach, (q. ».) It has long been obsolete. Co. Litt 476; 3 Bl. Comm. 146.

DE RATIONABILIBUS DIVI8IS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DE PARTITIONS FACIENDA.

A writ which lay to make partition of lands or tene- ments held by several as coparceners, tenants in common, etc. Reg. Orlg. 76; Fitzh. Nat Brev. 61, R ; Old Nat Brev. 142.

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5e apparatus — Not carried into the 5th edition (1979).

## DE PERAMBULATIONS FACIENDA.

A writ which lay where there was a dis- pute as to the boundaries of two adjacent lordships or towns, directed to the sheriff, commanding him to take with him twelve discreet and lawful knights of his county and make the perambulation and set the bounds and limits in certainty. Fitzh. Nat. Brev. 309, D.

5e apparatus — Not carried into the 5th edition (1979).

## DE PIGNORE SURREPTO FURTI, / ACTIO.

In the civil law. An action to re- cover a pledge stolen. Inst 4, 1, 14.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: actio furti lineage — Roman theft actions as root of conversion/replevin]**

The civil-law action to recover a stolen pledge (Inst. 4.1.14) is the Roman root of the actions for stolen chattels — the possessory remedies now grouped under conversion and replevin.

Why: Genuine: the entry is literally an action to recover a stolen pledge; the annotation traces its descent to the modern possessory actions.

## DE PIPA VINI GARIANDA.

A writ of trespass for carrying a pipe of wine so carelessly that It was stove, and the contents lost. Reg. Orlg. 110. Alluded to by Sir William Jones in his remarks on the case of Coggs v. Bernard, 2 Ld. Raym. 900. Jones, Bailm. 59.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bailment — the bailee's duty of care; see Coggs v. Bernard (1703)]**

The writ of trespass for carelessly carrying a pipe of wine — the case Jones used to illustrate Coggs v. Bernard — states the bailee's duty of care over goods entrusted to him.

Why: Genuine: the entry itself invokes Coggs v. Bernard as the case's doctrinal home; the annotation names bailment, the doctrine that case founded.

## DE PLACITO.

Of a plea; of or in an action. Formal words used in declarations and other proceedings, as descriptive of the particular action brought.

5e apparatus — Not carried into the 5th edition (1979).

## DE PLAGIS ET MAHEMIO.

Of

wounds and mayhem. The name of a crim- inal appeal formerly In use in England, in cases of wounding and maiming. Bract. foL 144b; 2 Reeve, Eng. Law, 34. See Appeal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:24-25, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot, Burning for burning, wound for wound, stripe for stripe.

Why: The appeal de plagis et mahemio lay for wounding and maiming. Exodus 21:24-25 is the lex talionis — the biblical measure of redress for wounds and maiming, the direct scriptural counterpart of the entry's legal concep...

## DE PLANO.

Lat On the ground ; on a level. A term of the Roman law descrip- tive of the method of heardiug causes, when the praetor stood on the ground with the suit- ors, Instead of the more formal method when he occupied a bench or tribunal; hence in- formal, or summary.

5e apparatus — Not carried into the 5th edition (1979).

## DE PLEGHS ACQUIETANDI8.

Writ for acquitting or releasing pledges. A writ that lay for a surety, against him for whom he had become surety for the payment of a certain sum of money at a certain day, where the latter had not paid the money at the ap- pointed day, and the surety was compelled to pay it. Reg. Orlg. 158; Fitzh. Nat. Brev. 137, C; 3 Reeve, Eng. Law, 65.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: suretyship — a surety who pays the principal's debt is entitled to indemnity from the principal]**

The writ let a surety compelled to pay recover against the principal who defaulted — the surety's right of indemnity against the principal debtor.

Why: Genuine: the entry's mechanism is exactly surety-indemnity; the annotation states the live suretyship doctrine.

**[Scripture] — Scripture**

**[Proverbs 17:18, KJV]**

A man void of understanding striketh hands, and becometh surety in the presence of his friend.

Why: The writ gave the surety (pledge) his remedy against the defaulting principal. Proverbs 17:18 is the classic biblical text on the surety's office — the wisdom tradition's warning about the very undertaking the writ's...

## DE PONENDO SI GILLUM AD EX- / CEPTIONEM.

Writ for putting a seal to an exception. A writ by which justices were formerly commanded to put their seals to exceptions taken by a party in a suit Reg. Orig. 182.

5e apparatus — Not carried into the 5th edition (1979).

## DE POST DISSEISINA.

Writ of post disseisin. A writ which lay for him who, having recovered lands or tenements by prw- cipc quod reddat, on default, or reddition.

was again disseised by the former disseisor. Reg. Orig. 208; Fitzh. Nat Brev. 190.

5e apparatus — Not carried into the 5th edition (1979).

## DE PRJEROGATIVA REGIS.

The

statute 17 Edw. I., St. 1, c. 9, defining the prerogatives of the crown on certain sub- jects,

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but especially directing that the king shall have ward of the lands of idiots, taking the profits without waste, and finding them necessaries. 2 Steph. Comm. 529.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: parens patriae — the sovereign as guardian of persons under legal disability]**

The statute gave the king ward of the lands of idiots, 'taking the profits without waste, and finding them necessaries' — the feudal origin of parens patriae, the sovereign as guardian of those under legal disability.

Why: Genuine: the entry quotes the idiot-wardship clause; parens patriae is the classic doctrinal name for exactly that sovereign guardianship.

## DE PRJE8ENTI.

Of the present; in the present tense. See Per Verba de PassEim.

5e apparatus — Not carried into the 5th edition (1979).

## DE PROPRIETATE PROBANDA.

Writ for proving property. A writ directed to the sheriff, to inquire of the property or goods distrained, where the defendant in an action of replevin claims the property. 3 Bl. Comm. 148 ; Reg. Orig. 85 b.-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## DE QUARANTINA H ABEND A.

At

common law, a writ which a widow entitled to quarantine might sue out in case the heir or other persons ejected her. It seems to have been a summary process, and required the sheriff, if no just cause were shown against it, speedily to put her into posses- sion. Aiken v. Aiken, 12 Or. 203, 6 Pac. 682.

5e apparatus — Not carried into the 5th edition (1979).

## DE QUIBUS SUR DISSEISIN.

An an- cient writ of entry.

DE QUO, and DE QUIBUS. Of which. Formal words in the simple writ of entry, from which it was caljed a writ of entry “in the quo," or “In the quibun" 3 Reeve, Eng. Law, 33.

5e apparatus — Not carried into the 5th edition (1979).

## DE QUOTA LITIS.

In the clvU law. A contract by which one who has a claim difficult to recover agrees with another to give a part, for the purpose of obtaining his services to recover the rest. 1 Duval, note 201.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: contingent fee — agreement to share the proceeds of recovery as compensation for prosecuting the claim]**

The civil-law quota litis — a contract to give part of a hard-to-recover claim in exchange for services to recover the rest — is the structural ancestor of the contingent fee agreement.

Why: Genuine: the entry defines exactly a proceeds-sharing recovery contract; the contingent fee is the modern institution of the same structure, not a loose analogy.

## DE RAPTU VIRGINUM.

Of the ravish- ment of maids. The name of an appeal formerly in use in England in cases of rape. Bract fol. 147; 2 Reeve, Eng. Law, 38.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:25-26, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die: But unto the damsel thou shalt do nothing; there is in the damsel no sin worthy of death: for as when a man riseth against his neighbour, and slayeth him, even so is this matter.

Why: De raptu virginum names the old English criminal appeal for rape (ravishment of maids). Deuteronomy 22:25-26 is the biblical rape law — the forced woman bears no guilt; the man who forced her dies. The direct scriptur...

**[Humanity] — Humanity / Fiction & Film**

**[Pope, The Rape of the Lock, 1712]**

"What dire offence from am'rous causes springs, / What mighty contests rise from trivial things" — the poem's whole engine is 'rape' in the old legal sense: violent seizure (here, of a lock of hair), illuminating the word's historic range beyond its modern narrowed meaning.

Why: The appeal was 'of the ravishment of maids'; the poem plays on raptus as seizure, genuinely illuminating the term's older breadth. Public domain; couplet verified from memory with confidence.

## DE RATIONABILI PARTE BONO- / RUM.

A writ which lay for the wife and children of a deceased person against his executors, to recover their reasonable part or share of his goods. 2 Bl. Comm. 492; Fitzh. Nat Brev. 122, L; Hopkins v. Wright, 17 Tex. 36.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:8, KJV]**

But if any provide not for his own, and specially for those of his own house, he hath denied the faith, and is worse than an infidel.

Why: The writ recovered the wife and children's reasonable share of the deceased's goods from his executors. 1 Timothy 5:8 states the underlying duty — provision for one's own household — which is the moral root of the fam...

## DE RATIONABILIBUS D I V I S I S.

Writ for fixing reasonable boundaries. A writ which lay to settle the boundaries be- tween the lands of persons in different towns, where one complained of encroach- ment. Reg. Orig. 157b; Fitzh. Nat Brev. 128, M; Rose. Real Act 31; 3 Reeve, Eng. Law, 48.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: The writ settled boundaries between lands where one complained of encroachment. Deuteronomy 19:14 is the biblical boundary law — the ancient landmark must not be moved — the scriptural root of the same legal concept....

## DE REBUS.

Of things. The title of the third part of the Digests or Pandects, com- prising books 12-19, Inclusive.

5e apparatus — Not carried into the 5th edition (1979).

## DE REBUS DUBHS.

Of doubtful things or matters. Dig. 34, 5.

5e apparatus — Not carried into the 5th edition (1979).

## DE REOORDO ET FROCESSU MOT- / TEND IS.

Writ to send the record and pro- cess of a cause to a superior court ; a species of writ of error. Reg. Orig. 209.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: writ of error / appellate review — decision on the transmitted record]**

The writ sending the record and process to a superior court, 'a species of writ of error,' is the ancestor of appellate review — the reviewing court decides on the transmitted record.

Why: Genuine: the entry names the writ as a species of writ of error; the annotation states the appellate function it performed.

## DE RECTO.

Writ of right Reg. Orig. 1, 2; Bract fol. 3276. See Whit or Right.

5e apparatus — Not carried into the 5th edition (1979).

## DE RECTO DE AD VOCATIONS.

Writ

of right of advowson. Reg. Orig. 296. A writ which lay for one who had an estate in an advowson to him and his heirs in fee- simple, if he were disturbed to present Fitzb. Nat Brev. 30, B. Abolished by St. 3 A 4 Wm. IV. c. 27. TE. Writ of right, of reasonable part A writ which lay between privies in blood, as between brothers in gavelkind, or between sisters or other coparceners for lands in fee- simple, where one was deprived of his or her share by another. Reg. Orig. 36; Fltzh. Nat Brev. 9, B. Abolished by St 3 & 4 Wm. IV. c. 27.

5e apparatus — Not carried into the 5th edition (1979).

## DE RECTO PATENS.

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Writ of right patent. Reg. Orig. 1.

5e apparatus — Not carried into the 5th edition (1979).

## DE REDISSEXSINA.

Writ of redisseisin. A writ which lay where a man recovered by assise of novel disseisin land, rent, or com- mon, and the like, and was put in possession thereof by verdict, and afterwards was dis- seised of the same land, rent or common, by him by whom he was disseised before. Reg. Orig. 2066; Fltzh. Nat. Brev. 188, B.

5e apparatus — Not carried into the 5th edition (1979).

## DE REPARATIONE FACIENDA.

A

writ by which one tenant in common seeks to compel another to aid in repairing the property held, in' common. 8 Barn. & C. 269.

5e apparatus — Not carried into the 5th edition (1979).

## DE RESCUSSU.

Writ of rescue or res- eous. A writ which lay where cattle dis- trained, or persons arrested, were rescued from those taking them. Reg. Orig. 117, 118 ; Fltzh. Nat Brev. 101, C, G.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: rescue — the offense of forcibly freeing one lawfully arrested or in custody]**

The writ of rescue lay where distrained cattle or arrested persons were forcibly rescued — the procedural ancestor of the offense of rescue, forcibly freeing one lawfully in custody.

Why: Genuine: the entry defines the writ by the act of rescue; the annotation names the substantive offense of the same act.

## DE RETORNO HABENDO.

For hav- ing a return ; to have a return. A term ap- plied to the judgment for the defendant in on action of replevin, awarding him a re- turn of the goods replevied; and to the writ or execution issued thereon. 2 Tidd, Pr. 9i)3, 1038; 3 Bl. Comm. 149. Applied also to the sureties given by the plaintiff on com- mencing the action. Id. 147.

5e apparatus — Not carried into the 5th edition (1979).

## DE KEEN CULPABLE.

L. Fr. Guilty of nothing ; not guilty.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: plea of not guilty — denies the charge and puts the prosecution to its proof]**

'Guilty of nothing; not guilty' — the Law French form of the not-guilty plea, by which the accused denies the charge and puts the prosecution to its proof.

Why: Genuine: the entry is the plea itself in Law French; the annotation states the plea's operative effect.

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## DE BA VIE.

U Fr. Of his or her life; of his own life; as distinguished from pur autre vie, tor another’s life. Litt. H 36, 36.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: life estate pur sa vie vs. pur autre vie]**

'Of his own life, as distinguished from pur autre vie' — the life estate pur sa vie, measured by the tenant's own life, as against pur autre vie, measured by another's.

Why: Genuine: the entry draws exactly this distinction; the annotation names the estates it distinguishes.

## DE 8 ALVA GARDIA.

A writ of safe- guard allowed to strangers seeking their rights in English courts, and apprehending violence or injury to their persons or proper- ty. Reg. Orig. 26.

5e apparatus — Not carried into the 5th edition (1979).

## DE SALVO CONDUCTU.

A writ of

safe conduct. Reg. Orig. 256, 26.

5e apparatus — Not carried into the 5th edition (1979).

## DE SCACCARIO.

Of or concerning the exchequer. The title of a statute passed in the fifty-first year of Henry III. 2 Reeve, Eng. Law, 61.

5e apparatus — Not carried into the 5th edition (1979).

## DE 8CUTAGIO HABENDO.

Writ for having (or to have) escuage or scutage. A writ which anciently lay against tenants by knight-service, to compel them to serve in the king’s wars or send substitutes or to pay es- cuage ; that is a sum of money. Fltzh. Nat Brev. 83, C. The same writ lay for one who had already served in the king’s army, or paid a fine instead, against those who held of him by knight-service, to recover his escuage or scutage. Reg. Orig. 88 ; Fltzh. Nat. Brev. 83, D, F.

5e apparatus — Not carried into the 5th edition (1979).

## DE BE BENE OERENDO.

For behav- ing himself well; for his good behavior. Yelv. 90, 154.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: peace bond / recognizance to be of good behavior]**

'For behaving himself well; for his good behavior' — the condition of the recognizance to be of good behavior, the peace bond binding one to keep the peace.

Why: Genuine and distinct from #4: de se bene gerendo is the recognizance condition, not judicial tenure; the peace bond is its modern form.

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## DE SECTA AD MOLENDINUM.

Of

suit to a mill. A writ which lay to compel one to continue his custom (of grinding) at a mill. 3 Bl. Comm. 235; Fltzh. Nat Brev. 122, M.

De aimilibns ad similla eadem rations procedendum eat. From like things to like things we are to proceed by the same rule or reason, [i. e., we are allowed to argue from the analogy of cases.] Branch, Princ.

De aimililras idem eat j udicandnm . Of

[respecting] like things, [in like cases,] the judgment is to be the same. 7 Coke, 18.

5e apparatus — Not carried into the 5th edition (1979).

## DE SON TORT.

L. Fr. Of his own wrong. A stranger who takes upon him to act as an executor without any Just author- ity is called an “executor of his own wrong,” (de eon tort.) 2 Bl. Comm. 507 ; 2 Stepb. Comm. 244.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: executor de son tort — one who intermeddles with a decedent's estate without authority is liable as executor]**

A stranger who takes upon himself to act as executor without just authority is an 'executor of his own wrong' — executor de son tort — and answers as executor for his intermeddling.

Why: Genuine: the entry defines this named doctrine; the annotation states its liability rule.

## DE SON TORT DEMESNE.

Of his own

wrong. The law French equivalent of the Latin phrase de injuria, (g. v.)

5e apparatus — Not carried into the 5th edition (1979).

## DE STATUTO MERCATORIO.

The

writ of statute merchant. Reg. Orig. 1466.

5e apparatus — Not carried into the 5th edition (1979).

## DE STATUTO STAPUUE.

The writ of statute staple. Reg. Orig. 151.

5e apparatus — Not carried into the 5th edition (1979).

# T

## TDRJE.

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Writ of surcharge of pasture. A judicial writ which lay for him who was Impleaded In the county court, for surcharg- ing a common with his cattle, in a case where he was formerly Impleaded for it in the same court, and the cause was removed into one of the courts at Westminster. Reg. Jud. 366

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# D

## DE TABULIS EXHIBENDIS.

Of show- ing the tablets of a will. Dig. 43, 5.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PE TAIXAGIO NOR OONOEPENPO.

Of not allowing talliage. The name given to the statutes 25 and 34 Edw. I., restrict- ing the power of the king to grant talliage. 2 Inst 532 ; 2 Reeve, Eng. Law, 104. MEMORIA HOMINUM NON EXISTXT.

Prom time whereof the memory of man does not exist to the contrary. Lltt f 170.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: extraordinary taxation requires the consent of the taxed through their representatives]**

The statutes restricting the king's power to grant talliage state the consent-to-taxation principle: extraordinary levies require the consent of the taxed, through their representatives.

Why: Genuine: the entry identifies statutes curbing unconsented royal taxation; the axiom states the constitutional principle they embody, without quoting a clause from memory.

## PE TEMPORE IN TEMPOS ET AP / OMNIA TEMPORA.

From time to time, and at all times. Townsh. PI. 17.

5e apparatus — Not carried into the 5th edition (1979).

## PE TEMPS PONT MEMORIE NE / COURT.

L. Fr. From time whereof mem- ory runneth not; time out of memory of man. Litt ff 143, 145, 170.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: time immemorial / prescription — enjoyment from beyond legal memory presumes lawful origin]**

'Time whereof memory runneth not' — time immemorial, the root of prescription: rights enjoyed from

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beyond legal memory are presumed lawful in origin.

Why: Genuine: the entry defines the phrase; the annotation names the prescription doctrine built on it.

## PE TESTAMENTIS.

Of testaments. The title of the fifth part of the Digests or Pandects; comprising the twenty-eighth to the thirty-sixth books, both inclusive.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: De testamentis is the Digest title 'Of testaments.' Hebrews 9:16-17 states the defining legal property of a testament — it takes force only at the testator's death — exactly the Roman-law concept the title covers. Epi...

## PE THEOEONIO.

A writ which lay for a person who was prevented from taking toll. Reg. Orig. 103.

5e apparatus — Not carried into the 5th edition (1979).

## PE TRANSGRESSIONS.

A writ of

trespass. Reg. Orig. 02.

5e apparatus — Not carried into the 5th edition (1979).

## PE TRANSGRESSIONE, AP AU- / DIENDUM ET TERMIN ANPUM.

A writ or commission for the hearing and determin- ing any outrage or misdemeanor.

. PE UNA PARTE. A deed de una parte Is one where only one party grants, gives, or binds himself to do a thing to another. It differs from a deed inter partes, ( q . v.) 2

Bouv. Inst no. 2001.

5e apparatus — Not carried into the 5th edition (1979).

## PE UXORE RAPTA ET ABPUCTA.

A writ which lay where a man’s wife had been ravished and carried away. A species of writ of trespass. Reg. Orig. 97 ; Fitzh. Nat Brev. 89, O ; 3 Bl. Comm. 139.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:25-26, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die: But unto the damsel thou shalt do nothing; there is in the damsel no sin worthy of death.

Why: The writ lay where a man's wife had been ravished and carried away. The verse treats the betrothed damsel, but its operative rule — forced ravishment is the ravisher's capital guilt, the woman's none — is the biblical...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Rape of Lucrece, 1594]**

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(paraphrase) Lucretia, a wife, ravished and the city convulsed by the crime — Shakespeare's narrative poem is the canonical literary treatment of the ravishing of a wife, the writ's exact subject. (paraphrase)

Why: The writ lies where a man's wife has been ravished and carried away; the poem treats that crime at full length.

## PE VASTO.

Writ of waste. A writ which might bg brought by him who had the immediate estate of inheritance in rever- sion or remainder, against the tenant for life, in dower, by curtesy, or for years, where the latter had committed waste in

lands; calling upon the tenant to appear and show cause why he committed waste and destruction in the place named, to the disinherison (ad exhasredationem) of the plaintiff. Fitzh. Nat Brev. 65, C; 3 Bl. Comm. 227, 228. Abolished by 8t 3 & 4 Wm. IV. c. 27. 3 Steph. Comm. 506.

5e apparatus — Not carried into the 5th edition (1979).

## PE VENTRE IN SPICIENP O.

A writ to inspect the body, where a woman feigns to be pregnant, to see whether she is with child. It lies for the heir presumptive to ex- amine a widow suspected to be feigning pregnancy in order to enable a supposititious heir to obtain the estate. 1 Bl. Comm. 456; 2 Steph. Comm. 287.

It lay also where a woman sentenced to death pleaded pregnancy. 4 Bl. Comm. 495. This writ has been recognized in America. 2 Chand. Crim. Tr. 381.

5e apparatus — Not carried into the 5th edition (1979).

## PE VERBO IN VERBUM.

Word for word. Bract fol. 1386. Literally, from word to word.

5e apparatus — Not carried into the 5th edition (1979).

## PE VERBORUM SIGNIFICATIONS.

Of the signification of words. An Important title of the Digests or Pandects, (Dig. 50, 16,) consisting entirely of definitions of words, and phrases used in the Roman law.

DE VI LAICA AmOVENDA. Writ of (or for) removing lay force A writ which lay where two parsons contended for a church, and one of them entered into it with a great number of laymen, and held out the other vi el armis; then he that was holden out had this writ directed to the sheriff, that he remove the force Reg. Orig. 59; Fitzh. Nat Brev. 54, D.

5e apparatus — Not carried into the 5th edition (1979).

## PE VICINETO.

From the neighborhood, or vicinage. 3 Bl. Comm. 360. A term ap- plied to a jury.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — 'by an impartial jury of the State and district wherein the crime**

**shall have been committed']**

'From the neighborhood' — the jury of the vicinage, whose modern form is the Sixth Amendment's guarantee of trial by a jury of the State and district where the crime was committed.

Why: Genuine: the entry applies the term to a jury (3 Bl. Comm. 360); the vicinage clause is quoted verbatim and is the constitutional form of the same requirement.

# D

## DE WARRANTIA CHARTJE.

Writ of warranty of charter. A writ which lay for him who was enfeoffed, with clause of warranty, [in the charter of feoffment,] and was afterwards impleaded in an assise or other action, in which he could not vouch or call to warranty; in which case he might have this writ against the feoffor, or his heir, to« compel him to warrant the land unto him. Reg. Orig. 1576; Fitzh. Nat Brev. 134, Di Abolished by St 3 & 4 Wm. IV. c. 27.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: covenant of warranty — the grantor's covenant to defend the grantee's title]**

The writ compelled the feoffor to warrant the land where the feoffee was impleaded — the ancestor of the covenant of warranty, by which a grantor defends the grantee's title.

Why: Genuine: the entry's writ enforces warranty of title; the covenant of warranty is its modern conveyancing form.

## DE WARRANTIA DIEI.

A writ that lay where a man had a day in any action to appear in proper person, and the king at that day, or before, employed him in some service, so that he could not appear at the day in- court It was directed to the justices, that they should not record him to be In default for his not appearing. Fitzh. Nat. Brev. 17, A ; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## DEACON.

In ecclesiastical law. A min- ister or servant in the church, whoso office is

to assist the priest in divine service and thp distribution of the sacrament. It is the low- est order in the Church of England.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:8, KJV]**

Likewise must the deacons be grave, not doubletongued, not given to much wine, not greedy of filthy lucre;

Why: The entry defines the deacon as the church's minister/servant assisting the priest. 1 Timothy 3:8 is the scriptural description of the deacon's office and character — the verse that defines the very office the entry d…

## DEAD BODY.

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A corpse. The body of a human being, deprived of life, but not yet en- tirely disintegrated. Meads v. Dougherty County, 96 Ga. 697, 25 S. E. 915.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: no property in a corpse — quasi-property of the next of kin for burial]**

There is no property in a corpse in the ordinary commercial sense; the next of kin hold a quasi-property right in the body for purposes of burial.

Why: Genuine: the entry defines the corpse as a legal subject (with its own case cite); the no-property rule with the burial quasi-property exception is the classic doctrine governing it.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, 1601]**

"Alas, poor Yorick! I knew him, Horatio" — Hamlet in the graveyard, turning skulls in his hands: the law's 'body deprived of life' met as a moral fact.

Why: The entry defines a corpse in clinical terms; the gravedigger scene is the culture's deepest meditation on what a dead body is.

## DEAD FREIGHT.

When a merchant who has chartered a vessel puts on board a part only of the Intended cargo, but yet, hav- ing chartered the whole vessel, is bound to pay freight for the unoccupied capacity, the freight thus due is called “dead freight.” Gray v. Carr, L. R. 6 Q. B. 528 ; Phillips v. Rodle, 15 East. 547.

5e apparatus — Carried into the 5th edition (1979).

## DEAD LETTERS.

Letters which the postal department has not been able to deliver to the persons for whom they were intended. They are sent to the “dead-letter office,” where they are opened, and returned to the writer if his address can be ascertained.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Melville, "Bartleby, the Scrivener", 1853]**

(paraphrase) The story's narrator once clerked in the Dead Letter Office, where undeliverable letters go to be opened and returned — the entry's definition given a human room and a melancholy keeper. (paraphrase)

Why: The entry defines the dead-letter office; Melville literally staffs his narrator there. Direct definitional fit.

## DEAD MAN'S PART.

In English law. That portion of the effects of a deceased per- son which, by the custom of London and York, is allowed to the administrator ; being, where the deceased leaves a widow and chil- dren, one-third ; where he leaves only a wid- ow or only children, one-half ; and, where he leaves neither, the whole. This portion the administrator was wont to apply to his own use. till the statue 1 Jac. II. c. 17, declared that the same should be subject to the stat- ute of distributions. 2 Bl. Comm. 518; 2 Steph. Comm. 254; 4 Reeve, Eng. Law, 83. A similar portion in Scotch law is called “dead's part,” ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## DEAD-PLEDGE.

A mortgage ; mortuum vadium.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mortgage — from mortuum vadium, the 'dead pledge']**

'A mortgage; mortuum vadium' — the mortgage is the 'dead pledge,' the pledge that is dead to the pledgor until redemption.

Why: Genuine: the entry gives the etymology as the definition; the annotation states the doctrinal content the etymology carries (dead until redeemed).

## DEAD RENT.

In English law. A rent payable on a mining lease in addition to a royalty, so called because it is payable al- though the mine may not be worked.

5e apparatus — Carried into the 5th edition (1979).

## DEAD USE.

A future use.

5e apparatus — Carried into the 5th edition (1979).

## DEADHEAD.

This term is applied to persons other than the officers, agents, or em- ployes of a railroad company who are per- mitted by the company to travel on the road without paying any fare therefor. Gardner v. Ilall, 61 N. C. 21.

5e apparatus — Carried into the 5th edition (1979).

## DEADLY FEUD.

In old European law. A profession of irreconcilable hatred till a person is revenged even by the death of his enemy.

DEADLY WEAPON. 8uch weapons or instruments as are made and designed for offensive or defensive purposes, or for the destruction of life or the infliction of injury. Com. v. Branham, 8 Bush (Ky.) 387.

A deadly weapon is one likely to produce

death or great bodily harm. People v. Fuqua, 58 Cal. 245.

A deadly weapon is one which in the man- ner used is capable of producing death, or of Inflicting grent bodily injury, or seriously wounding. McReynolds v. State, 4 Tex. App. 327.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 12:19, KJV]**

Dearly beloved, avenge not yourselves, but rather give place unto wrath: for it is written, Vengeance is mine; I will repay, saith the Lord.

Why: The deadly feud is the profession of irreconcilable hatred till revenged by the enemy's death — private

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vengeance as a legal institution. Romans 12:19 forbids private vengeance and reserves it to the Lord (quoting Deu…

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Romeo and Juliet, 1597]**

"A plague o' both your houses!" — Mercutio's curse on the Montagues and Capulets: irreconcilable hatred pursued to death, the entry's definition spoken aloud.

Why: The entry defines a deadly feud as a profession of irreconcilable hatred till revenged by death; the play is that definition enacted.

## DEAD’S PART.

In Scotch law. The part remaining over beyond the shares se- cured to the widow and children by law. Of this the testator had the unqualified disposal. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DEAF AND DUMB.

A man that is born deaf, dumb, and blind is looked upon by the law as in the same state with an idiot, he being supposed incapable of any understand- ing. 1 Bl. Comni. 304. Nevertheless, a deaf and dumb person may be tried for felony if the prisoner can be made to understand by means of signs. 1 Leach, C. L. 102.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Dusky v. United States, 362 U.S. 402 (1960)]**

A deaf-and-dumb person 'may be tried for felony if the prisoner can be made to understand by means of signs' — the 1910 statement of competency to stand trial: the accused must be able to understand the proceedings.

Why: Genuine: the entry's test (can the prisoner be made to understand) is the competency inquiry; Dusky is the modern competency standard, cited with high confidence.

**[Humanity] — Humanity / Fiction & Film**

**[Penn, The Miracle Worker, 1962]**

(paraphrase) The law presumes the deaf-dumb-blind person incapable of understanding; the film answers the presumption — Annie Sullivan teaching Helen Keller to understand, word by spelled word. (paraphrase)

Why: The entry states the legal presumption of incapacity; the film is the famous true story that refutes it. Genuine counter-illumination.

## DEAFFOREST.

In old English law. To discharge from being forest. To free from forest laws.

5e apparatus — Not carried into the 5th edition (1979).

## DEAL.

To traffic; to transact business; to trade. Makers of an accommodation note are deemed dealers with whoever discounts it. Vernon v. Manhattan Co., 17 Wend. (N. Y.) 524.

—Dealer. A dealer, in the popular, and there- fore in the statutory, sense of the word, is not one who buys to keep, or makes to sell, but one who buys to sell again. Norris v. Coni., 27

Pa. 496; Com. v. Campbell, 33 Pa. 380.— Dealings. Transactions in the course of trade or business. Held to include payments to a bankrupt. Moody & M. 137 ; 3 Car. & P. 85.— Dealers' talk. The puffing of goods to induce the sale thereof; not regarded in law as fraudulent un- less accompanied by some artifice to deceive the purchaser and throw him off his guard or some concealment of intrinsic defects not easily dis- coverable. Kimball v. Bangs, 144 Mass. 321. 11 N. E. 113; Reynolds v. Palmer (C. C.) 21 Fed. 433.

5e apparatus — Not carried into the 5th edition (1979).

## DEAN.

In English ecclesiastical law. An ecclesiastical dignitary who presides over the chapter of a cathedral, and is next in rank to the bishop. So called from having been originally appointed to superintend ten canons or prebendaries. 1 Bl. Comm. 382; Co. Lift. 95; Spelman.

There are several kinds of deans, namely: Deans of chapters ; deans of peculiars ; rural deans; deans in the colleges; honorary deans; deans of provinces.

—Dean and chapter. In ecclesiastical law. The council of a bishop, to assist him with their advice in the religious and also in the temporal affairs of the see. 3 Coke, 75 ; 1 Bl. Comm. 382; Co. Litt. 103. 300.— Dean of the arches. The presiding judge of the Court of Arches. He is also an assistant judge in the court of admiralty. 1 Kent, Comm. 371 ; 3 Steph.

Comm. 727.

5e apparatus — Carried into the 5th edition (1979).

## DEATH.

The extinction of life ; the de- parture of the soul from the body: defined by physicians as a total stoppage of the cir- culation of the blood, and a cessation of the

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — 'no Attainder of Treason shall work Corruption of Blood']**

The entry's 'civil death' — the change depriving one of civic rights and juridical capacities — is the doctrine of attainder and corruption of blood, which the Constitution forbids as a consequence of treason.

Why: Genuine: the entry defines civil death as deprivation of civic rights; the attainder clause is the constitutional answer to that doctrine, quoted in its operative phrase.

**[Scripture] — Scripture**

**[Hebrews 9:27, KJV]**

And as it is appointed unto men once to die, but after this the judgment:

Why: The entry defines death in legal contemplation (natural and civil). Hebrews 9:27 states death's appointed certainty and what follows it — the judgment — which is why death carries legal consequence (devolution, attain…

**[Humanity] — Humanity / Fiction & Film**

**[Donne, Holy Sonnet X, 1633]**

"Death, be not proud, though some have called thee / Mighty and dreadful, for thou art not so" — the extinction of life addressed and diminished, the legal definition met by the metaphysical rebuttal.

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Why: The entry defines death clinically; Donne's sonnet is the canonical literary confrontation with death as more than stoppage. Public domain; lines held with confidence.

## DEBET ET BOLET.

animal and vital functions consequent there- on, such as respiration, pulsation, etc.

In legal contemplation, It Is of two kinds:

(1) Natural death, 1. e., the extinction of life ;

(2) Civil death, which Is that change In a per- son's legal and civil condition which deprives him of civic rights and juridical capacities Rud qualifications, as natural death extin- guishes his natural condition. It follows as a consequence of being attainted of treason or felony, in English law, and anciently of enter- ing a monastery or abjuring the realm. The person in this condition is said to be civiliter mortuus , civilly dead, or dead in law. Bal- timore v. Chester, 53 Vt. 319, 38 Am. Rep. 677 ; Avery v. Everett, 110 N. Y. 317, 18

N. E. 148, 1 L. 1L A. 264, 0 Am. St. Rep. 368; In re Donnelly’s Estate, 125 Cal. 417, 58 Pac. 61, 73 Am. St. Rep. 62; Troup v. Wood, 4 Johns. Ch. (N. Y.) 248; Coffee v. Haynes, 124 Cal. 561, 57 Pac. 482, 71 Am. St Rep. 99.

"Natural” death Is also used to denote a death which occurs by the unassisted opera- tion of natural causes, as distinguished from a “violent” death, or one caused or accelerat- ed by the interference of human agency.

Death warrant. A warrant from the proper executive authority appointing the time and place for the execution of the sen- tence of death upon a cQnvlct judicially con- demned to suffer that penalty.

Death wateh. A special guard set to watch a prisoner condemned to death, for some days before the time for the execution, the special purpose being to prevent any escape or any attempt to anticipate the sen- tence.

5e apparatus — Not carried into the 5th edition (1979).

## DEATH-BED.

In Scotch law. A state of sickness which ends in death. Ersk. Inst. 3, 8, 95.

-Death-bed deed. In Scotch law. A deed made by a person while laboring under a dis- temper of which he afterwards died. Ersk. Inst. 3, 8, 96. A deed is understood to be in death-bed, if, before signing and delivery there- of, the grantor was sick, and never convalesced thereafter. 1 Forbes, Inst. pt. 3, b. 2, c. 4, tit. 1, | 1. But it is not necessary that he should be actually confined to his bed at the time of making the deed. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Tolstoy, The Death of Ivan Ilyich, 1886]**

(paraphrase) The whole novella is a death-bed: Ivan Ilyich's sickness, ending in death, examined inch by inch — the entry's 'state of sickness which ends in death' given its fullest literary treatment. (paraphrase)

Why: The entry names the condition; Tolstoy's novella is that condition as a complete work of art.

## DEATH’S PART.

See Dead's Past: Dead Man’s Past.

DEATHSMAIf. The executioner; hang- man; he that executes the extreme penalty of the law.

5e apparatus — Carried into the 5th edition (1979).

## DEBAUCH.

To entice, to corrupt, aud, when used of a woman, to seduce. Origi- nally, the term had a limited signification, meaning to entice or draw’ one aw’ay from his work, employment, or duty; and from this sense Its application has enlarged to In- clude the corruption of manners and viola- tion of the person. In Its modern legal sense, the word carries with It the idea of “carnal

knowledge,” aggravated by assault, violent seduction, ravishment Koenig v. Nott, 2 IUlt. (N. Y.) 323. And see Wood v. Mathews, 47 Iowa, 410 ; State v. Curran, 51 Iowa, 112, 49 N. W. 1006.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Wilde, The Picture of Dorian Gray, 1890]**

(paraphrase) Dorian Gray, enticed and corrupted from his work and duty into the corruption of manners — the entry's widening sense of 'debauch' traced across a whole life. (paraphrase)

Why: The entry traces debauch from enticement-from-duty to corruption of manners; the novel is that exact widening, personified.

## DEBENTURE.

A certificate given by the collector of a port, under the United States customs law’s, to the effect that an Importer of merchandise therein named is entitled to a drawback, (q. v„) specifying the amount and time when payable. See Act Cong. March 2, 1799, f 80.

In English law. A security for a loan of money issued' by a public company, usually creating a charge on the whole or a part of the company’s stock and property, though not necessarily In the form of a mortgage. They are subject to certain regulations ns to the mode of transfer, and ordinarily have coupons attached to facilitate the payment of Interest. They are generally issued in a series, with provision that they shall rank pari passu In proportion to their amounts. See Bank v. Atkins, 72 Vt. 33, 47 Atl. 176.

An Instrument In use In some government departments, by which government Is charged to pay to a creditor or his assigns the sum found due on auditing his accounts. Brande; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## DEBENTURE STOCK.

A stock or fund representing money borrowed by a company or public body, in England, and charged on the whole or part of its property.

Debet esse flute litliun. There ought to be an end of suits; there should ‘be some pe- riod put to litigation. Jenk. Cent. 61.

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5e apparatus — Carried into the 5th edition (1979).

## DEBET ET DETINET.

He owes and de- tains. Words anciently used in the original writ, {and now, in English, in the plaintiff's declaration,) in an action of debt, where it was brought by one of the original contract- ing parties who personally gave the credit, against the other who personally incurred the debt, or against his heirs, if they were bound to the payment ; as by the obligee against the obligor, by the landlord against the tenant, etc. The declaration, in such cases, states that the defendant “owes to,” as well as “de- tains from,” the plaintiff the debt or thing in question ; and hence the action is said to be "in the debrt ct dctinct." Where the dec- laration merely states that the defendant detains the debt, (as in actions by and against an executor for a debt due to or from the testator,) the action Is said to be “in the dctinct” alone. Fitzh. Nat. Brev. 119, G.; 3 Bl. Comm. 155.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: debet et detinet vs. detinet — the pleading distinction between debt and detinue]**

'He owes and detains' — the formula in debt brought by the original contracting party, as against detinet alone: the pleading mark distinguishing the action of debt from detinue.

Why: Genuine: the entry explains the formula's office in the action of debt; the annotation names the debt/detinue pleading distinction it marks.

## DEBET ET SOUET.

(Lab He owes and is used to.) Where a man sues in a writ of right or to recover any right of which he is for the first time disseised, ns of a suit at a mill or in case of a writ of quod permittat.

he brings his writ in the debet et solet. Beg. Orig. 144a; Fitzh. Nat. Brev. 122, M.

Debet quit Jurt anbjseere ubi delin- qnlt. One [every one] ought to be subject to the law [of the place] where he offends. 3 Inst. 34. This maxim is taken from Bracton. Bract fol. 1546.

Debet ina caique domni esee perfngi- mn tutissimnm. Every man’s house should be a perfectly safe refuge. Clason v. Shot- well, 12 Johns. (N. Y.) 31, 54.

Debile fondamentiun fallit opus. A

weak foundation frustrates [or renders vain] the work [built upon it.] Shep. Touch. GO; Noy, Max. 5, max. 12 ; Finch, Law, b. 1, ch.

3. When the foundation fails, all goes to the ground; as, where the cause of action fails, the action itself must of necessity fail. Wing, Max., 113, 114, max. 40 ; Broom, Max. 180.

5e apparatus — Not carried into the 5th edition (1979).

## DEBIT.

A sum charged as due or owing. The term is used in book-keeping to denote the charging of a person or an account with all that is supplied to or paid out for him or for the subject of the account

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DEBITA FUNDI.

L. Lat. In Scotch law. Debts secured upon land. Ersk. Inst.

4, 1, 11.

5e apparatus — Not carried into the 5th edition (1979).

## DEBITA LAICOBUM.

L. Lat. In old English law. Debts of the laity, or of lay persons. Debts recoverable in the civil courts were anciently so called. Crabb, Eng. Law, 107.

Debita icquoutur personam debitor!*.

Debts follow the person of the debtor; that is, they have no locality, and may be collect- ed wherever the debtor can be found. 2 Kent, Comm. 429 ; Story, Confl. Laws, $ 3G2.

5e apparatus — Not carried into the 5th edition (1979).

## DEBITOR.

In the civil and old English law. A debtor.

Debitor non praenmitnr donare. A

debtor is not presumed to make a gift. Whatever disposition he makes of his prop- erty is supposed to be in satisfaction of his debts. 1 Karnes, Eq. 212. Where a 'debtor gives money or goods, or grants land to his creditor, the natural presumption Is that he means to get free from his obligation, and not to make a present, unless donation be expressed. Ersk. Inst. 8, 3, 93.

Debitornm pactiouibns oreditorum petitio nee tolli nee minni potest. 1

Poth. Obi. 108 ; Broom, Max. 697. The rights of creditors can neither be taken away nor diminished by agreements among the debtors.

5e apparatus — Not carried into the 5th edition (1979).

## DEBITRIX.

A female debtor.

5e apparatus — Not carried into the 5th edition (1979).

## DEBITUM.

Something due, or owing ; a debt

Debitnm et eontrnetns sunt nuiilus loci. Debt and contract are of [belong to] no place; have no particular locality. The obligation in these cases is purely personal, and actions to enforce, it may be brought anywhere. 2 Inst 231; Story, Oonfl. Laws,

| 362; 1 Smith, Lead. Cas. 340, 363.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Maxim: 'Debitum et contractus sunt nullius loci' — debt and contract are of no place]**

'Debitum et contractus sunt nullius loci' — debt and contract are of no place: the obligation is purely personal, and the action is transitory, maintainable wherever the debtor may be found.

Why: Genuine: the maxim is quoted verbatim from the entry's body; the annotation states the transitory-action doctrine the maxim embodies.

## DEBITUM IN FRIES ENTI SOLVEN- / DUM IN FUTURO.

A debt or obligation complete when contracted, but of which the performance cannot be required till some fu- ture period.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 101(5) — 'claim' includes rights to payment whether matured or unmatured]**

A debt complete when contracted though performance cannot be required till a future period — the unmatured obligation, cognizable as a present claim though not yet payable.

Why: Genuine: the entry defines the unmatured-but-complete obligation; the Bankruptcy Code's claim definition is its modern doctrinal home, cited by section.

## DEBITUM SINE BREVT.

L. Lat

Debt without writ; debt without a declara- tion. In old practice, this term denoted an action begun by original bill, instead of by writ In modern usage, it is sometimes ap- plied to a debt evidenced by confession of Judgment without suit The equivalent Nor- man-French phrase was “debit sane breve.” Both are abbreviated to A. ». 6.

5e apparatus — Not carried into the 5th edition (1979).

## DEBT.

A sum of money due by certain and express agreement; as by bond for a de- terminate sum, a bill or note, a special bar- gain, or a rent reserved on a lease, where the amount is fixed and specific, and does not depend upon any subsequent valuation to settle it! 3 Bl. Comm. 154; Camden v. Allen, 26 N. J. Law, 398; Appeal of City of Erie, 91 Pa. 398; Dickey v. Leonard, 77 Ga. 151 ; Hagar v. Reclamation DIst, 111 D. S. 701, 4 Sup. Ct. 663, 28 L. Ed. 569; Appeal Tax Court v. Bice, 50 Md. 302.

A debt is a sum of money due by contract. It is most frequently due by a certain and ex- press agreement, which fixes the amount, in- dependent of extrinsic circumstances. But it is not essential that the contract should be express, or that it should fix the precise amount to be paid. U. S. v. Colt, 1 Pet C.

C. 145, Fed. Cas. No. 14,839.

Standing alone, the word “debt” is as applica- ble to a sum of money which has been promised at a future day. as to a sum of money now due and payable. To distinguish between the two, it may be said of the former that it is a debt owing, and of the latter that it is a debt due. Whether a claim or demand is a debt or not is in no respect determined by a reference to the time of payment. A sum of money which is certainly and in all events

payable is a debt, without regard to the fact whether it be pay- able now or at a future time. A sum payable upon a contingency, however, is not a debt, or does not become a debt until the contingency has happened. People v. Arguello, 37 Cal. 624.

The word “debt" is of large import, includ- ing not only debts of record, or judgments, and debts by specialty, but also obligations arising under simple contract, to a very wide extent ; and in its popular sense includes all that Is due to a man under any form of obligation or promise. Gray v. Bennett, 3 Mete. (Mass.) 522,

“Debt” has been differently defined, owing to the different subject-matter of the statutes in which it has been used. Ordinarily, it imports

a sum of money arising upon a contract, express or implied. In its more general sense, it is de- fined to be that which is due from one person to another, whether money, goods, or services; that which one person is bound to pay or per- form to another. Under the legal-tender stat- utes, it seems to import any obligation by con- tract, express or implied, which may be dis- charged by money through the voluntary action of the party bound. Wherever he may be at liberty to perform his obligation by the payment of a specific sum of money, the party owing the obligation is subject to what, in these statutes, is termed "debt.” Kimpton v. Bronson, 45 Barb. (N. Y.) 618.

The word is sometimes used to denote an aggregate of separate debts, or the total sum of the existing claims against a person or company. Thus we speak of the “national debt,” the "bonded debt” of a corporation, etc.

Synonyms. The term “demand” is of much broader Import than "debt,” and em- braces rights of action belonging to the debt- or beyond those which could appropriately be called "debts.” In this respect the term “de- mand” Is one of very extensive Import. In re Denny, 2 Hill (N.Y.) 223.

The words “debt” and "liability” are not synonymous. As applied to the pecuniary relations of parties, liability Is a term of broader significance than debt. The legal acceptation of debt is a sum of money due by certain and express agreement Liability Is responsibility ; the state of one who is bound In law and justice to do something which may be enforced by action. This liability may arise from contracts either express or Implied, or In consequence of torts commit- ted. McElfresh v. Klrkendall, 36 Iowa, 226:

“Debt" Is not exactly synonymous with “duty.” A debt is a legal liability to pay a specific sum of money; a duty is a legal ob- ligation to perform some act. Allen v. Dick- son, Minor (Ala.) 120.

In practice. The name of a common-law action, which lies to recover a certain spe- cific sum of money, or a sum that can read- ily be reduced to a certainty. 3 Bl. Comm. 154; 3 Steph. Comm. 461; 1 Tldd. Pr. 3.

It is said to lie in the debet and detinet, (when it is stated that the defendant owes and detains,) or in the detinet, (when it is stated merely that he detains.) Debt in the detinet for goods differs from detinue, because it is not es- sential in this action, as in detinue, that the specific property in the goods should have been vested in the plaintiff at the time the action

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is brought. Dyer, 246.

—Debt by simple con tract. A debt or de- mand founded upon a verbal or implied con- tract, or upon any written agreement that is not under seal.— Debt by specialty. A debt due, or acknowledged to be due, by some deed or instrument under seal ; as a deed of cove- nant or sale, a lease reserving rent, or a bond or obligation. 2 Bl. Comm. 465; Kerr v. Ly- decker. 51 Ohio St. 240. 37 N. E, 207. 23 h.

R. A. 842; Marriott v. Thompson. Willes, 180. — Debt ex mntuo. A species of debt or obli- gation mentioned by Glanville and Brncton, and which arose ex mvtuo , out of a certain kind of loan. Gian. lib. 10. c. 3; Bract, fol. 90. See Mutuum ; Ex Mutuo.— Debt of record. A

debt which appears to be due by the evidence of a court of record, as by a judgment or re- cognizance. 2 Bl. Comm. 465. — Legal debts. Those that are recoverable in a court of com- mon law, as debt on a bill of exchange, a bond, or a simple contract. Rogers v. Daniell, 8 Allen (Mass.) 348; Guild v. Walter, 182 Mass. 225, 6o N. E. 68. — Mutual debts. Money due on both sides between two persons.— Passive debt. A debt upon which, by agreement be- tween the debtor and creditor, no interest is payable, as distinguished from active debt; «. e., a debt upon which Interest is payable. In this sense, the terms "active” and “passive” are applied to certain debts due from the Spanish government to Great Britain. Wharton. In another sense of the words, a debt is “active” or "passive” according as the person of the cred- itor or debtor is regarded; a passive debt being •that which a man owes ; an active debt that which is owing to him. In this meaning every debt is both active and passive, — active as re- gards the creditor, passive as regards the debtor. — Public debt. That which is due or owing by the government of a state or nation. The terms ,rpublic debt” and "public securities,” used in legislation, are terms generally applied to national or state obligations and dues, and would rarely, if ever, be construed to include town debts or obligations ; nor would the term “public revenue” ordinarily be applied to funds arising from town taxes. Morgnn v. Cree, 46 Vt. 773, 14 Am. Rep. 640.— Pure debt. In Scotch law. A debt due now and uncondition- ally is so called. It is thus distinguished from a future debt, — payable at a fixed day in the future.— and a contingent debt, which will only become due upon the happening of a certain con- tingency.—Simple contract debt. One where the contract upon which the obligation arises is neither ascertained by matter of record nor yet by deed or special instrument, but by mere oral evidence the most simple of any, or by notes unsealed, which are capable of a more easy proof, and therefore only better than a verbal promise. 2 Bl. Comm. 466.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:8, KJV]**

Owe no man any thing, but to love one another: for he that loveth another hath fulfilled the law.

Why: The entry defines debt as a sum due by certain agreement. Romans 13:8 is the classic scriptural debt rule — owe no one anything — the moral counterpart of the legal obligation. Epistolary teaching, not divine speech —...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, 1601]**

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"Neither a borrower nor a lender be; / For loan oft loses both itself and friend" — Polonius's counsel: debt as the solvent of friendship, stated as prudential law.

Why: The entry defines debt as a sum due by express agreement; Polonius gives the culture's standing counsel on the borrower-lender relation. Lines held with confidence.

## DEBTEE.

A person to whom a debt is due; a creditor. 3 Bl. Comm. 18 ; Plowd. 543. Not used.

5e apparatus — Carried into the 5th edition (1979).

## DEBTOR.

One who owes a debt; he who may be compelled to pay a claim or de- mand.

— Common debtor. In Scotch law. A debtor whose effects have been arrested by several cred- itors. In regard to these creditors, he is their common debtor, and by this term is distinguish- ed in the proceedings that take place in the competition. Bell.— Debtor’s act 1869. The statute 32 & 33 Viet. c. 62, abolishing impris- onment for debt in England, and for the punish- ment of fraudulent debtors. 2 Steph. Comm. 159-164. Not to be confounded with the. Bank- ruptcy Act of 1869. Mozley & Whitley.— Debt- or’s summons. In English law. A summons issuing from a court having jurisdiction in bank- ruptcy, upon the creditor proving a liquidated debt of not less than £50, which he has failed to collect after reasonable effort, stating that if the debtor fail, within one week if a trader, and within three weeks if a non-trader, to pay or compound for the sum specified, a petition may be presented against him praying that he may be adjudged a bankrupt. Bankruptcy Act 1869, | 7 ; Robs. Bankr. ; Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Little Dorrit, 1857]**

(paraphrase) The Marshalsea debtor's prison, where William Dorrit has lived so long he has become its 'Father' — the debtor as the law's long-term resident, and debt as an inheritable condition. (paraphrase)

Why: The entry defines one who may be compelled to pay; the novel is built around the institution that housed such persons.

## DECALOGUE.

The ten commandments given by God to Moses. The Jews called them the “Ten Words,” hence the name.

DECAJf ATUS. A deanery. Speiman.

A company of ten persons. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:1-3, KJV]**

And God spake all these words, saying, I am the LORD thy God, which have brought thee out of the land of Egypt, out of the house of bondage. Thou shalt have no other gods before me.

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Why: The entry IS the Decalogue — the ten commandments given by God to Moses. Quoted from its opening, where God speaks in the first person. deity_verbatim true.

**[Humanity] — Humanity / Fiction & Film**

**[DeMille, The Ten Commandments, 1956]**

(paraphrase) DeMille's epic is the mass-culture Ten Commandments — the giving of the law on Sinai staged at Hollywood scale, fixing 'the ten commandments given by God to Moses' in the public imagination. (paraphrase)

Why: The entry names the Decalogue; the film is its most widely seen dramatization. Film note; no quote needed.

## DSCAXIA.

The office, Jurisdiction, ter- ritory, or command of a decanus, or dean. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DECANUS.

In ecclesiastical and old European law. An officer having super- vision over fen; a dean. A term applied not only to ecclesiastical, but to civil and mili- tary, officers. Decanus monasticus; a mo- nastic dean, or dean of a monastery; an offi- cer over ten monks. Decanus in majori ecclesice; dean of a cathedral church, pre- siding over ten prebendaries. Decanus epis- copi; a bishop’s or rural dean, presiding over ten clerks or parishes. Decanus friborgi; dean of a friborg. An officer among the Sax- ons who presided over a friborg, tithing, decennary, or association of ten inhabitants; otherwise called a “tithing man," or “bors- holder.” Decanus militaris; a military offi- cer, having command of ten soldiers. Spel- man.

Ia Roman law. An officer having the command of a company or "mess” of ten soldiers. Also an officer at Constantinople having charge of the burial of the dead.

5e apparatus — Not carried into the 5th edition (1979).

## DECAPITATION.

The act of behead- ing. A mode of capital punishment by cut- ting off the head.

DECEASE, n. Death; departure from life, not including civil death, (see Death.) In re Zeph’s Estate, 50 Hun, 523, 8 N. X. Supp. 460.

DECEASE, v. To die; to depart life, or from life. This has always been a common term in Scotch law. "Gif ane man deceas- is." Skene.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dickens, A Tale of Two Cities, 1859]**

(paraphrase) The guillotine through the Terror, and Sydney Carton's walk to it in another man's place — beheading as capital punishment given literature's most famous scaffold scene. (paraphrase)

Why: The entry defines beheading as a mode of capital punishment; the novel's climax is that mode's iconic literary instance. DECOLLATIO left bare to avoid double-dipping.

## DECEDENT.

A deceased person; one who has lately died. Etymologically the word denotes a person who

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is dying, but it has come to be used in law as signifying any defunct person, (testate or intestate,) but always with reference to the settlement of his estate or the execution of his will. In re Zeph’s Estate, 50 Hun, 523, 3 N. X. Supp. 460.

5e apparatus — Carried into the 5th edition (1979).

## DECEIT.

A fraudulent and cheating mis- representation, artifice, or device, used by one or more persons to deceive and trick an- other, who is ignorant of the true facts, to the prejudice and damage of the party im- posed upon. People v. Chadwick, 143 Cal. 116, 76 Pac. 884 ; Reynolds v. Palmer (C. C.) 21 Fed. 433; French v. Vlning, 102 Mass. 132. 3 Am. Rep. 440; Swift v. Rounds. 19

R. I. 527, 35 Atl. 45, 33 L. R. A. 561, 61 Am. St. Rep. 791 ; In re Post, 54 Hun, 634, 7 N. X. Supp. 438; Civ. Code Mont. 1895, § 2292.

A subtle trick or device, whereunto may be referred all manner of craft and collusion used to deceive and defraud another by any means whatsoever, which hath no other or

more proper name than deceit to distinguish the offense. [West Symb. S 68;] Jacob.

The word “deceit,” as Well as "fraud.” ex- cludes the idea of mistake, and imports knowl- edge that the artifice or device used to deceive or defraud is untrue. Farwell v. Metcalf, 61 111. 373.

In old English law. The name of an original writ, and the action founded on it, which lay to recover damages for auy injury committed deceitfully, either in the name of another, (as by bringing an action in anoth- er’s name, and then suffering a nonsuit, whereby the plaintiff became liable to costs.) or by a fraudulent warranty of goods, or other personal injury committed contrary to good faith and honesty. Reg. Orig. 112-116; Fitzh. Nat. Brev. 95. E, 98.

Also the name of a Judicial writ which formerly lay to recover lands which had been lost by default by the tenant in a real action, In consequence of his not having been summoned by the sheriff, or by the collusion of his attorney. Rose. Real Act. 136; 3 Bl. Comm. 166.

—Deceitful plea. A sham plea ; one alleging as facts things which are obviously false on the face of the plea. Gray v. Gidiere, 4 Strob. (S. C.) 443.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: fraud/deceit — misrepresentation, scienter, intent, reliance, damages]**

The entry defines the tort of deceit — fraudulent misrepresentation to another's damage; its elements are misrepresentation of material fact, scienter, intent to induce reliance, justifiable reliance, and resulting damages.

Why: Genuine: the entry defines deceit with its own cases; the annotation states the tort's elements, complementing #48's Roman root rather than duplicating it.

**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

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Why: Deceit is fraudulent misrepresentation to another's prejudice. Leviticus 19:11 prohibits dealing falsely and lying to one another — the direct biblical counterpart of the entry's concept. Narrative law, not divine fir...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, 1603]**

"I am not what I am" — Iago's motto: fraudulent misrepresentation as a personal creed, the entry's 'artifice used to deceive one ignorant of the true facts' compressed to five words.

Why: The entry defines deceit as cheating misrepresentation; Iago is deceit personified, and the line is his self-definition. Held with confidence.

## DECEM TAXES.

(Ten such; or tea tales, jurors.) In practice. The name of a writ which issues in England, where, on a trial at bar, ten Jurors are necessary to make up a full panel, commanding the sheriff to summon the requisite number. 3 Bl. Comm. 364; Reg. Jud. 306 ; 3 Steph. Comm. 602.

. DECEMVIRI LITIBUS JUDICANDIS.

Lat. In the Roman law. Ten persons (five senators and five equites) who acted as the council or assistants of the pnetor, when he decided on matters of law. Halllfax, Civil Law, b. 3, c. 8. According to others, they were themselves judges. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

# U

## UECENNA.

In old English law. A tith- ing or decennary; the precinct of a frank11 pledge; consisting of ten freeholders with thejr families. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# D

## DECENNARIUS.

Lat One who held one-half a vlrgate of land. Du Cange. One of the ten freeholders in a decennary. Id. ; Calvin. Decennier. One of the decennarii, or ten freeholders making up a tithing. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DECENNARY.

A tithing, composed of ten neighboring families. 1 Reeve, Eng. Law, 13; 1 Bl. Comm. 114.

Deeeptis non decipientibu*, jura mb- ▼eniont. The laws help persons who are deceived, not those deceiving. Tray. Lat Max. 149.

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**[Law] — Law**

**[Maxim: 'Deceptis non decipientibus, jura subveniunt']**

The entry preserves the maxim 'Deceptis non decipientibus, jura subveniunt' — the laws help the deceived, not the deceivers: the equitable principle behind relief for fraud.

Why: Genuine: the maxim is quoted verbatim from the entry's body; the annotation states the fraud-relief principle it expresses. Placed where the maxim appears, per the well's per-entry discipline.

## DECERN.

In Scotch law. To decree. “Decernit and ordainlt." 1 How. State Tr. 927. “Decerns.” Shaw, 16.

5e apparatus — Not carried into the 5th edition (1979).

## DECESSUS.

In the civil and old English law. Death; departure.

Deeet tames principem aerrare leges qaibna Ipse aervatns est. It behoves, in- deed, the prince to keep the laws by which he himself is preserved.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: 'Decet tamen principem servare leges quibus ipse servatus est']**

The entry preserves the maxim 'Decet tamen principem servare leges quibus ipse servatus est' — it behoves the prince to keep the laws by which he himself is preserved: the sovereign is bound by law.

Why: Genuine: the maxim is quoted verbatim from the entry's body; the annotation states the rule-of-law principle it expresses.

## DECIDE.

To decide includes the power and right to deliberate, to weigh the rea- sons for and against, to see which pre- ponderate. and to be governed by that pre- ponderance. Darden v. Lines, 2 Fla. 571 ; Com. v. Anthes, 5 Gray (Mass.) 253; In re Milford & M. R. Co., 68 N. H. 570, 36 AO. 545.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, 1601]**

(paraphrase) 'To be or not to be' — Hamlet weighing the reasons for and against, governed (or paralyzed) by the preponderance: the entry's definition of deciding as deliberation, dramatized at full length. (paraphrase)

Why: The entry defines decide as including the power to deliberate and weigh reasons; the soliloquy is the monument of that weighing. DECISION left bare — same idea, no double-dip.

## DEC EES TANTPM.

(Ten . times as much.) The name of an ancient writ that was used against a juror who had taken a bribe in money for his verdict. The injured party could thus recover ten times the amount of the bribe.

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## DECIM2E.

In ecclesiastical law. Tenths, or tithes. The tenth part of the annual prof- it of each living, payable formerly to the pope. There were several valuations made of these livings at different times. The de- cim<B (tenths) were appropriated to the crown, and a new valuation established, by 26 Hen. VIII., c. 3. 1 Bl. Comm. 284. See Tithes.

Declines debentnr parooho. Tithes are due to the parish priest

Decimn de declmatia solvl aoa debeat.

Tithes are not to be paid from that which is given for tithes.

Decline; de Jure dlviao et eaaoalea in- atltntlone pertinent ad persoaaxa. Dal. 50. Tithes belong to the parson by divine right and canonical institution.

Deolnue aen debeat »olvi, nbi aoa est anaaa reao ratio; et ez aaanatls reao- Taatibns simnl semel. Cro. Jac. 42. Tithes ought not to be paid where there is not an annual renovation, and from annual renovations once only.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: Decimae is 'tenths, or tithes' — the tenth part of each living's profits. Malachi 3:10 states the tithing duty itself, in the LORD's first-person speech — the scriptural foundation of the institution the entry defines...

## DECIMATION.

The punishing every tenth soldier by lot, for mutiny or other fail- ure of duty, was termed “decimatio Icr/io- nls" by the Romans. Sometimes only the twentieth man was punished, ( vicesimatio ,) or the hundredth, (ccntesimatio.)

5e apparatus — Carried into the 5th edition (1979).

## DECEME.

A French coin of the value of the tenth part of a franc, or nearly two cents.

Deeipi qnam fallere est tutias. It Is safer to be deceived than to deceive. Lofft, 896.

5e apparatus — Not carried into the 5th edition (1979).

## DECISION.

In practice. A judgment or decree pronounced by a court in settle- ment of a controversy submitted to it and Bl.Law Dict.(2d Ed.)— 22

by way of authoritative answer to the qdetf- tions raised before it. Adams v. Railroad Co., 77 Miss. 194, 24 South. 317, 60 L. R.

A. 33; Board of Education v. State, 7 Kan. App. 620, 52 Pac. 466; Halbert v. Alford (Ter.) 16 S. W. 814.

“Decision” is not synonymous with “opin- ion.” A decision of the court is its judg- ment ; the

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opinion is the reasons given ' for that Judgment Houston v. Williams, 13 Cal. 27, 73 Am. Dec. 565; Craig v. Bennett. 158 Ind. 9, 62 N. E. 273.

5e apparatus — Carried into the 5th edition (1979).

## DECISIVE OATH.

In the civil law. Where one of the parties to a suit, not being able to prove his charge, offered to refer the decision of the cause to the oath of his ad- versary, which the adversary was bound to accept, or tender the same proposal back again, otherwise the whole was taken as confessed by him. Cod. 4, 1, 12.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The decisive oath is the civil-law device by which a party refers the decision of the cause to the adversary's oath — the oath ends the suit. Hebrews 6:16 states exactly that legal function: an oath for confirmation i...

## DECLARANT.

A person who makes a declaration.

5e apparatus — Carried into the 5th edition (1979).

## DECLARATION.

In pleading. The

first of the pleadings on the part of the plaintiff in an action at law, being a formal and methodical specification of the facts and circumstances constituting his cause of action. It commonly comprises several sec- tions or divisions, called “counts,” and its formal parts follow each other in this or- der: Title, venue, commencement, cause of

action, counts, conclusion. The declaration, at common law, answers to the “libel” in ecclesiastical and admiralty law. the “bill” in equity, the “petition” in civil law. the "complaint” in code pleading, and the “count” in real actions. TT. S. v. Ambrose. 108 IT. R. 336, 2 Rup. Ct. 682. 27 L. Ed. 746 ; Buckingham v. Murray, 7 Houst. (Del.) 176, 30 Atl. 779; Smith v. Fowle. 12 Wend. (N. Y.) 10; Railway Co. v. Nugent, 86 Md. 349, 38 Atl. 779, 39 L. R. A. 161.

Ia evidence. An unsworn statement or narration of facts made by a party to the transaction, or by one who has an interest in the existence of the facts recounted. Or a similar statement made by a person since deceased, which is admissible in evidence in some cases, contrary to the general rule, e. g., a “dying declaration.”

Ia practice. The declaration or declara- tory part of a Judgment, decree, or order is that paft which gives the decision or opinion of the court on the question of law in the case. Thus, in an action raising a question as to the construction of a will, the judg- ment or order declares that, according to the true construction of the will, the plain- tiff has become entitled to the residue of the testator’s estate, or the like. Sweet.

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Ia Scotob practice. The statement of a criminal or prisoner, taken before a magis- trate. 2 Alls. Crlm. Pr. 555.

— Declaration of Independence. A formal declaration or announcement, promulgated July

4, 1776, by the congress of the United States of America, In the name and behalf of the people of the colonies, asserting and proclaiming their independence of the British crown, vindicating their pretensions to political autonomy, and an- nouncing themselves to the world as a free and independent nation. — Declaration of Inten- tion. A declaration made by an alien, as a preliminary to naturalization, before a court of record, to the effect that it is bona fide his in- tention to become a citizen of the United States, and to renounce forever all allegiance and fideli- ty to any foreign prince, potentate, state, or sovereignty whereof at the time he may be a citizen or subject. Rev. St. | 2165 (U. S. Comp. St. 1901, p. 1329). — Declaration of Paris. The name given to an agreement announcing four important rules of international law effect- ed between the principal European powers at the Congress of Paris in 1856. These rules are: (1) Privateering is and remains abolished; (2) the neutral flag covers enemy’s goods, except contraband of war; (3) neutral goods, except contraband of war, are not liable to confisca- tion under a hostile flag; (4) blockades, to be binding, must be effective.— Declaration of right. See Bill of Rights.— Declaration of trnst. The act by which the person who holds the legal title to property or an estate acknowledges and declares that he holds the same in trust to the use of another person or for certain specified purposes. The name is also used to designate the deed or other writing embodying such a declaration. Griffith v. Max- field, 66 Ark. 513. 51 S. W. 832.— Declaration of war. A public and formal proclamation by a nation, through its executive or legislative de- partment, that a state of war exists between itself and another nation, and forbidding all per- sons to aid or assist the enemy.— Dying dec- larations. Statements made by a person who is lying at the point of death, and is conscious of his approaching dissolution, in reference to the manner in which he received the injuries of which he is dying, or other immediate cause of his death, and in reference to the person who inflicted such injuries or the connection with such injuries of a person who is charged or suspected of having committed them; which statements are admissible in evidence in a trial for homicide where the killing of the declarant is the crime charged to the defendant. Simons v. People, 150 111. 66, 36 N. E. 1019 ; State v. Trusty, 1 Pennewill (Del.) 319, 40 Atl. 766; State v. Jones, 47 'La. Ann. 1524, 18 South. 515; Bell v. State, 72 Miss. 507. 17 South. 232; People v. Fuhrig, 127 Cal. 412. 59 Pac. 693; State v. Parham, 48 La. Ann. 1309, 20 South. 727.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: complaint — Fed. R. Civ. P. 8; the modern form of the declaration]**

The declaration — the plaintiff's first pleading at law, specifying the facts constituting his cause of action — is the ancestor of the modern complaint.

Why: Genuine: the entry defines the declaration as the plaintiff's opening pleading; the complaint is its direct procedural descendant.

## DECLARATOR.

In Scotch law. An action whereby It is sought to have some right of property, or of status, or other right Judicially ascertained and declared. Bell. —Declarator of trust. An action resorted to against a trustee who holds property upon titles cr facie for his own benefit. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: declaratory judgment — 28 U.S.C. § 2201]**

The Scotch action of declarator — to have a right judicially ascertained and declared, with nothing further claimed — is the ancestor of the declaratory judgment.

Why: Genuine: the entry defines the action as pure declaration of right; the Declaratory Judgment Act is its modern statutory form, cited by section.

## DECLARATORY.

Explanatory; design- ed to fix or elucidate what before was un- certain or doubtful.

—Declaratory action. In Scotch law. An action in which the right of the pursuer (or plaintiff) is craved to be declared, but nothing claimed to be done by the defender, (defendant.) Ersk. Inst. 5, 1, 46. Otherwise called an “ac- tion of declarator.’’ — Declaratory decree. In practice. A binding declaration of right in. eq- uity without consequential relief. — Declara- tory judgment. A declaratory judgment is one which simply declares the rights of the par- ties, or expresses the opinion of the court on a question of law, without ordering anything to be done.— Declaratory part of a law. That

which clearly defines rights to be observed and wrongs to be eschewed.— Declaratory stat- nte. One enacted for the purpose of removing doubts or putting an end to conflicting deci- sions in regard to what the law is in relation to a particular matter. It may either be ex- pressive of the common law, (1 Bl. Comm. 86; Gray v. Bennett, 3 Mete. [Mass.] 527 ;) or may declare what shall be taken to be the true mean- ing and intention of a previous statute, though in the latter case such enactments are more commonly called ‘‘expository statutes."

5e apparatus — Carried into the 5th edition (1979).

## DECLARE.

To solemnly assert a fact before witnesses, e. g., where a testator de- clares a paper signed by him to be his last will and testament. Lane v. Lane, 95 N. X. 49R

This also is one of the words customarily used in the promise given by a person who is affirmed as a witness, — “sincerely and truly declare and affirm.” Hence, to make a posi- tive and solemn asseveration. Bassett v. Denn, 17 N. J. Law, 433.

With reference to pleadings, it means to draw up, serve, and file a declaration ; e. g., a “rule to declare." Also to allege in a dec- laration as a ground or cause of action; as “he declares upon a promissory note."

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**[Scripture] — Scripture**

**[Matthew 5:37, KJV]**

But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: The entry's affirmation sense is the solemn asseveration — 'sincerely and truly declare and affirm.' Matthew 5:37 governs solemn assertion itself: let the declaration be plain yes or no. Jesus' spoken words, hence dei...

## DECLINATION.

In Scotch law. A plea to the jurisdiction, on the ground that the judge is Interested in the suit.

D£CLINATOIRES. ' In French law. Pleas to the jurisdiction of the court ; also of lis pendens, and of connewitd, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: judicial disqualification — 28 U.S.C. § 455]**

The Scotch declination — a plea to the jurisdiction on the ground that the judge is interested in the suit — is the ancestor of judicial disqualification for interest or bias.

Why: Genuine: the entry's plea is exactly disqualification for judicial interest; the federal disqualification statute is its modern counterpart, cited by section.

## DECLINATORY PLEA.

In English practice. The plea of sanctuary, or of bene- fit of clergy, before trial or conviction. 2 Hale, P. C. 236 ; 4 Bl. Comm. 333. Now abolished. 4 Steph. Comm. 400, note; Id. 436, note.

5e apparatus — Not carried into the 5th edition (1979).

## DECLINATURE.

In Scotch practice. An objection to the Jurisdiction of a judge. BelL

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## DECOCTION.

The act of boiling a sub- stance in water, for extracting its virtues. Also the liquor in which a substance has been boiled; water impregnated with the princi- ples of any animal or vegetable substance boiled in it Webster; Sykes ▼. Magone (C. O.) 38 Fed. 497.

In an indictment “decoction" and “in- fusion” are ejusdem generis; and if one is al- leged to have been administered. Instead of the other, the variance is Immaterial. 3 Camp. 74.

5e apparatus — Not carried into the 5th edition (1979).

## DECOCTOR.

In the Roman law. A bankrupt; a spendthrift; a squanderer of public funds. Calvin.

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## DECOLLATIO.

In old English and Scotch law. Decollation ; the punishment of beheading. Fleta, lib. 1, c. 21, g 6.

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5e apparatus — Not carried into the 5th edition (1979).

## DECONFES.

In French law. A name formerly given to those persons who died

without confession, whether they refused to confess or whether they were criminals to whom the sacrament was refused.

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## DECOY.

To inveigle, entice, tempt, or lure; as, to decoy a person within the Ju- risdiction of a court so that he may be serv- ed with process, or to decoy a fugitive crim- inal to a i>lace where he may be arrested without extradition papers, or to decoy one away from his place of residence for the pur- pose of kidnapping him and as a part of that act In all these uses, the word Implies en- ticement or luring by means of some fraud, trick, or temptation, but excludes the Idea of force. Eberllng v. State, 136 Ind. 117, 35

N. E. 1023; John v. State, 6 Wyo. 203, 44 Pac. 51 ; Campbell v. Hudson, 106 Mich. 523, 64 N. W. 483.

—Decoy letter. A letter prepared and mail- ed for the purpose of detecting a criminal, par- ticularly one who is perpetrating frauds upon the postal or revenue laws. U. S. v. Whittier, 5 Dill. 39, Fed. Cas. No. 16,688.— Decoy pond. A pond used for the breeding and maintenance of water-fowl. Keeble v. Hickeringshall, 3 Salk. 10.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: personal jurisdiction by in-state service ('tag jurisdiction')]**

To decoy a person within the jurisdiction 'so that he may be served with process' invokes personal jurisdiction by in-state service — jurisdiction founded on service within the forum.

Why: Genuine: the entry's example is precisely service-based personal jurisdiction; the annotation names the doctrine, without a case cite from memory.

**[Humanity] — Humanity / Fiction & Film**

**[Virgil, Aeneid, 19 BC]**

(paraphrase) The wooden horse left at Troy's gates: the Greeks' lure that inveigles a whole city within reach of destruction — the archetypal decoy, from which the word's cousins all descend. (paraphrase)

Why: The entry defines decoy as inveigling or luring; the Trojan Horse is the classical archetype. Classical wisdom, genuinely illuminating.

## DEGBEE.

In practice. The judgment of a court of equity or admiralty, answering to the judgment of a court of common law. A decree in equity Is a sentence or order of the court, pronounced on hearing and under- standing all the points In issue, and deter- mining the right of all the parties to the suit, according to equity and fcood conscience. 2 Daniell, Ch. Pr. 986; Wooster v. Handy (O. C.) 23 Fed. 56; Rowley v. Van Benthuysen, 16 Wend. (N. Y.) 383 ; Vance v. Rockwell, 3 Colo. 243 ; Halbert v. Alford (Tex.) 16 S. W. 814.

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Decree is the judgment of a court of equity, and is, to most intents and purposes, the same as a judgment of a court of common law. A decree, as distinguished from an order, is final, and is made at the bearing of the cause, where- as an order is interlocutory, and is made on mo- tion or petition. Wherever an order may, in a certain event resulting from the direction con- tained in the order, lead to the termination of the suit in like manner as a decree made at the hearing, it is called a "decretal order." Brown.

In Frenob law. Certain acts of the leg- islature or of the sovereign which have the force of law are called “decrees;” as the Ber- lin and Milan decrees.

In Scotch law. A final judgment or sen- tence of court by which the question at issue between the parties is decided.

Classification. Decrees in equity are ei- ther final or interlocutory. A final decree Is one which fully and finally disposes of the whole litigation, determining all questions raised by the case, and leaving nothing that requires further Judicial action. Travis v. Waters, 12 Johns. (N. Y.) 508 ; Mills v. Hoag, 7 Paige (N. Y.) 19, 31 Am. Dec. 271; Core v. 8trlckler, 24 W. Va. 689; Ex parte Crit- tenden, 10 Ark. 339. An interlocutory decree Is a provisional or preliminary decree, which Is not final and does not determine the suit.

but directs some further proceedings pre- paratory to the final decree. A decree pro- nounced for the purpose of ascertaining mat- ter of law or fact preparatory to a final de- cree. 1 Barb. Ch. Pr. 326, 327. Teaff v. Hewitt, 1 Ohio St 520, 59 Am.- Dec. 634; Wooster v. Handy (C. C.) 23 Fed. 56; Beebe v. Russell, 19 How. 283, 15 L. Ed. 668 ; Jen- kins v. Wild, 14 Wend. (N. Y.) 543.

—Consent decree. One entered by consent of the parties; it is not properly a judicial sen- tence, but is in the nature of a solemn con- tract or agreement of the parties, made under the sanction of the court, and in effect an ad- mission by them that the decree is a just de- termination of their rights upon the real facts of the case, if such facts had been proved. Allen v. Richardson, 9 Rich. Eq. (S. C.) 53; Kelly v. Milan (C. C.) 21 Fed. 842; Schmidt v. Mining Co., 28 Or. 9. 40 Pac. 1014, 52 Am. St Rep. 759.— Decree dative. In Scotch law. An order of a probate court appointing an ad- ministrator.—Decree nisi. A provisional de- cree, which will be made absolute on motion unless cause be shown against it. In English practice, it is the order made by the court for divorce, on satisfactory proof being given in support of a petition for dissolution of mar- riage ; it remains imperfect for at least six months, (which period may be shortened by the court down to three,) and then, unless sufficient cause be shown, it is made absolute on motion, and the dissolution takes effect, subject to ap- peal. Wharton.— Decree of constitution. In Scotch practice. A decree by which a debt is ascertained. Bell. In technical language, a decree which is requisite to found a title in the person of the creditor, whether that necessity arises from the death of the debtor or of the creditor. Id.— Decree of forthcoming. In Scotch law. A decree made after an arrest- ment (j. ti.) ordering the debt to be paid or the effects of the debtor to be delivered to the ar- resting creditor. Bel!.— Decree of Insolven- cy. One entered in a probate court, declaring the estate in question to be insolvent, that is, that the assets are not sufficient to

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pay the debts In full. Bush v. Coleman, 121 Ala. 548, 25 South. 569; Walker v. Newton, 85 Me. 458. 27 Ati. 347.— Decree of locality. In Scotch law. The decree of a teind court allocating stipend upon different heritors. It is equivalent to the apportionment of a tithe rent-charge.— Decree of modification. In Scotch law. A decree of the teind court modifying or fixing a stipend.— Decree of nnlllty. One entered in a suit for the annuiiment of a marriage, and adjudging the marriage to have been null and void ah initio. See N UIXITY. — Decree of reg- istration. In Scotch law. A proceeding giv- ing immediate execution to the creditor; simi- lar to a warrant of attorney to confess judg- ment.— Decree pro confesso. One entered in a court of equity in favor of the complainant where the defendant has made no answer to the bill and its allegations are consequently tak- en “as confessed.” Ohio Cent. R. Co. v. Central Trust Co.. 133 U. S. 83, 10 Sup. Ct. 235, 33

L. Ed. 561.

5e apparatus — Not carried into the 5th edition (1979).

## DECREET.

In Scotch law. The final Judgment or sentence of a court.

—Decreet absolvitor. A decree dismissing a claim, or acquitting a defendant. 2 Karnes, Eq. 367. — Decreet arbitral An award of ' ar- bitrators. 1 Karnes, Eq. 312. 313 : 2 Kames Eq. 367. — Decreet cognitlonls eansfi. When a creditor brings his action against the heir of his debtor in order to constitute the debt against him and attach the lands, and the heir appears and renounces the succession, the court then pronounces a decree cognitionis caiuS. Bell. — Deereet eondemaator. One whrre

the decision is in favor of the plaintiff. Ersk. Inst. 4, 3, 5.— Decreet of valuation of teinds. A sentence of the court of sessions, who are now in the place of the commissioners or the valuation of teinds,) determining the extent and value of teinds. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DECREMENTUM MARIS.

Bat. In old English law. Decrease of the sea; the re- ceding of the sea from the land. Callis, Sew- ers, (53,) 65. See Reliction.

5e apparatus — Not carried into the 5th edition (1979).

## DECREPIT.

This term designates a per- son who Is disabled, Incapable, or incompe- tent, either from physical or mental weak- ness or defects, whether produced by age or other causes, to such an extent as to render the Individual comparatively helpless in a personal conflict with one possessed of ordi- nary health and strength. Hall v. State, 16 Tex. App. 11, 49 Am. Rep. 824.

5e apparatus — Not carried into the 5th edition (1979).

## DECRETA.

In the Roman law. Judi- cial sentences given by the emperor as su- preme judge.

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Decrcta. conciUorom non ligut regu nostros. Moore, 906. The decrees of coun- cils bind not our kings.

5e apparatus — Not carried into the 5th edition (1979).

## DECRETAE ORDER.

See Decree; Ob-

**[TEXT INCOMPLETE — scan limitation]**

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## DEB.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## DECRETAXES BONIFACII OCTAVI.

A supplemental collection of the canon law, published by Boniface VIII. in 1298, called, also, “ Liber Sextus Decretalium," (Sixth Book of the Decretals.)

5e apparatus — Not carried into the 5th edition (1979).

## DECRETAXES GREGORII NONI.

The

decretals of Gregory the Ninth. A collec- tion of the laws of the church, published by order of Gregory IX. in 1227. It is compos- ed of five books, subdivided into titles, and each title is divided Into chapters. They are cited by using an X, (or extra;) thus “Cap. 8 X de Rcgulis Juris," etc.

5e apparatus — Not carried into the 5th edition (1979).

## DECRETAXS.

In ecclesiastical law. Letters of the pope, written at the suit or instance of one or more persons, determining some point 'or question in ecclesiastical law, and possessing the force of law. The decre- tals form the second part of the body of can- on law.

This is also the title of the second of the two great divisions of the canon law, the first being called the “Decree,” (decretum.)

5e apparatus — Not carried into the 5th edition (1979).

## DECRETO.

In Spanish colonial law. An order emanating from some superior tribunal, promulgated in the name and by the au- thority of the sovereign, in relation to eccle- siastical matters. Scbm. Civil Law, 93, note.

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## DECRETUM.

In the civil law. A spe- cies of imperial constitution, being a -Judg- ment or sentence given by the emperor upon

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hearing of a cause, (quod imperator cog- noscens decrevit.) Inst 1, 2, 6.

In canon law. An ecclesiastical law, in contradistinction to a secular law, (lex.) 1 Mackeld. Civil Law, p. 81, $ 93, (Kaufmann's note.)

5e apparatus — Not carried into the 5th edition (1979).

## DECRETUM GRATIANI.

Grattan’s de- cree, or decretum. A collection of ecclesias- tical law in three books or parts, made In the year 1151, by Gratlan, a Benedictine monk of Bologna, being the oldest as well as the first in order of the collections which to- gether form the body of the Roman canon law. 1 Bl. Comm. 82; 1 Reeve, Eng. Law, 67.

5e apparatus — Not carried into the 5th edition (1979).

## DECROWNING.

The act of depriving of a crown.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Richard II, 1595]**

(paraphrase) Richard II, made to hand over his crown piece by piece in the deposition scene — the act of depriving a king of his crown staged line by line, the hollow crown speech and all. (paraphrase)

Why: The entry names the act; the deposition scene is its most famous staging.

## DECRY.

To cry down; to deprive of credit “The king may at any time decry or cry down any coin of the kingdom, and make It no longer current” 1 Bl. Comm. 278.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5 — Congress's power 'to coin Money, regulate the Value thereof']**

The king's prerogative to 'cry down any coin of the kingdom, and make it no longer current' is the royal form of the coinage power the Constitution vests in Congress.

Why: Genuine: the entry states the prerogative over the currency; the Coinage Clause is its constitutional successor, quoted verbatim.

## DECURIO.

Lat. A decurion. In the provincial administration of the Roman em- pire, the decurlons were the chief men or official personages of the large towns. Taken as a body, the decurlons of a city were charg- ed with the entire control and administra- tion of its internal affairs; having powers both magisterial and legislative. See 1 Spence, Eq. Jur. 54.

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## DEDBAKA.

In Saxon law. An actual homicide or manslaughter.

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**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: Dedbaka is Saxon law's word for homicide/manslaughter. Exodus 20:13 is the Decalogue's direct prohibition of killing — the biblical counterpart of the entry's concept. Spoken by God (Exodus 20:1), hence deity_verbatim...

## DEDI.

(Lat. l have given.) A word used in deeds and other instruments of con- veyance when such instruments were made in Latin, and anciently held to imply a war- ranty of title. Deakins v. Iloliis, 7 Gill &

J. (Md.) 315.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: implied covenants from words of conveyance — 'dedi' anciently implied warranty of title]**

'I have given' — anciently held to imply a warranty of title: certain words of conveyance carry implied covenants.

Why: Genuine: the entry states the implied-warranty rule with its own case; the annotation names the conveyancing doctrine.

## DEDI ET CONCESSI.

I have given and granted. The operative words of conveyance in ancient charters of feoffment, and deeds of gift and grant; the English “ given and granted ” being still the most proper, though not the essential, words by which such con- veyances are made. 2 Bl. Comm. 53, 316, 317 ; 1 Steph. Comm. 161, 177, 473, 474.

5e apparatus — Not carried into the 5th edition (1979).

## DEDICATE.

To appropriate and set apart one’s private property to some public use ; as to make a private way public by acts evincing an intention to do so.

5e apparatus — Carried into the 5th edition (1979).

## DEDICATION.

In real property law. An appropriation of land to some public use, made by the owner, and accepted for such use by or on behalf of the public; a delib- erate appropriation of land by its owner for any general and public uses, reserving to himself no other rights than such as are com- patible with the full exercise and enjoymeut

of the' public uses to which the property has been devoted. People v. Marin County, 103 Oal. 223, 37 Pnc. 203, 20 L. K. A. 659; Gro- gan v. Hayward (C. C.) 4 Fed. 161 ; Go wan r. Philadelphia Exch. Co., 5 Watts & S. (Pa.) 141, 40 Ain. Dec. 489; Alden Coal CO. v. Chaliis, 200 111. 222, 65 N. E. 665; Barteau v. West, 23 Wls. 416; Wood v. Hurd, 34

N. J. Law, 87.

Express or implied. A dedication may be express, as where the intention to dedicate is expressly manifested by a deed or an explicit oral or written declaration of the owner, or

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some other explicit manifestation of his pur- pose to devote the land to the public use. An implied dedication may be shown by some act or course of conduct on the part of the owner from which a reasonable inference of intent may be drawn, or which is inconsistent with any other theory than that he intended a dedi- cation. Culmer v. Salt lake City, 27 I'taii, 252. 75 Pac. 620; San Antonio v. Sullivan, 23 Tex. Civ. App. 019, 57 S. W. 42 • Kent v. Pratt, 73 Conn. 573, 48 Atl. 418; Hurley v. West St. Paul, 83 Minn. 401, 86 N. W. 427; People v. Marin County, 103 Cal. 223. 37 Pac. 203, 26 L. R. A. 059.

Common-law or statutory. A common- law dedication is one made as above described, and may be either express or implied. A stat- utory dedication is one made under and in conformity with the provisions of a statute regu- lating the subject, and is of course necessa- rily express. San Antonio v. Sullivan, 23 Tex. Civ. App. 619, 57 S. W. 42; People v. Marin Coimd^, 103 Cal. 223, 37 Pac. 203, 26 L. R.

In copyright law. The first publication of a work, without having secured a copy- right, is a dedication of it to the public ; that having been done, any one may republish it. Bartlett v. Crittenden, .5 McLean, 32, Fed. Cas. No. 1,07a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law dedication — offer by the owner and acceptance by or on behalf of the public]**

Dedication in real-property law — the owner's deliberate appropriation of land to public use, accepted by or on behalf of the public — requires both the owner's intent (offer) and public acceptance.

Why: Genuine: the entry's definition contains both appropriation and acceptance; the annotation states the doctrine's two elements.

**[Scripture] — Scripture**

**[1 Kings 8:63, KJV]**

So the king and all the children of Israel dedicated the house of the LORD.

Why: Dedication is the deliberate appropriation of property to a use beyond private enjoyment. 1 Kings 8:63 records the archetypal dedication — the house of the LORD set apart by the king and the people — the same act of s…

## DEDICATION-DAY.

The feast of ded- ication of churches, or rather the feast day of the saint and patron of a church, which was celebrated not only by the inhabitants of the place, but by those of all the neighboring villages, who usually came thither ; and such assemblies were allowed as lawful. It was usual for the people to feast and to drink on those days. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:22, KJV]**

And it was at Jerusalem the feast of the dedication, and it was winter.

Why: The entry is the feast of dedication of churches. John 10:22 names the feast of the dedication itself — the scriptural instance of a dedication feast. Narrative setting, not divine speech — no flag.

## DEDIMUS ET CONCESSIMUS.

(Lat. We have given and granted.) Words used by the king, or where there were more gran- tors than one, Instead of dedi et concessi.

5e apparatus — Not carried into the 5th edition (1979).

## DEDIMUS POTESTATEM.

(We have given power.) In English practice. A writ or commission Issuing out of chancery, em- powering the persons named therein to per- form certain acts, as to administer oaths to defendants in chancery and take their an- swers, to administer oaths of office to justices of the peace, etc. 3 Bl. Comm. 447. It was anciently allowed for many purposes not now in use, as to make an attorney, to take the acknowledgment of a fine, etc.

In the United States, a commission to take testimony is sometimes termed a "dedimus potestatcm.” Buddicum v. Kirk, 3 Crunch,

293, 2 L. Ed. 444; Sergeant's Lessee v. Bid- dle, 4 Wheat. 008, 4 L. Ed. 627.

5e apparatus — Not carried into the 5th edition (1979).

## DEDIMUS POTESTATEM DE AT- / TORNO FACIE NDO.

In old English prac- tice. A writ, Issued by royal authority, em- powering an attorney to appear for a defend- ant. Prior to the statute of Westminster 2, a party could not appear in court by attor- ney without this writ.

5e apparatus — Not carried into the 5th edition (1979).

## DEDITION.

The act of yielding up any- thing ; surrender.

5e apparatus — Not carried into the 5th edition (1979).

## DEDITITII.

In Roman law. Criminals who had been marked in the face or on the body with fire or an iron, so that the mark could not be erased, and subsequently manu- mitted. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## DEDUCTION.

By “deduction” is under- stood a portion or thing which au heir has a right to take from the mass of the suc- cession before any partition takes place. Civil Code La. art 1358.

5e apparatus — Carried into the 5th edition (1979).

## DEDUCTION FOR NEW.

In marine In- surance. An allowance or drawback credit- ed to the insurers on the cost of repairing a vessel for damage arising from the perils of the sea insured against. This allowance Is usually one-third, and is made on the theory that the parts restored with new materials are better, in that proportion than they were before the damage.

5e apparatus — Carried into the 5th edition (1979).

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**DEED.**

A sealed instrument, containing a contract or covenant, delivered by the party to be bound thereby, and accepted by the party to whom the contract or covenant runs.

A writing- containing a contract sealed and delivered to the party thereto. 3 Washb. Real Prop. 239.

In its legal sense, a "deed” is an instru- ment in writing, upon pai>er or parchment, between parties able to contract, subscrib- ed, sealed, and delivered. Insurance Co. v. Avery, 60 Ind. 572 ; 4 Kent, Comm. 452.

In a more restricted sense, a written agree- ment, signed, sealed, and delivered, by which one person conveys land, tenements, or her- editaments to another. This is its ordinary modern meaning. Sanders v. Riedlnger, 30 App. Dlv. 277, 51 N. Y. Supp. 937 ; Reed v. Hazleton, 37 Kan. 321, 15 Pac. 177 ; Dudley v. Sumner, 5 Mass. 470 ; Fisher v. Pender, 52

N. C. 485.

The term is also used as synonymous with “fact,” "actuality,” or “act of parties.” Thus a thing “In deed” Is one that has been really or expressly done ; as opposed to “in law,” which means that it is merely Implied or pre- sumed to have been done.

—Deed In fee. A deed conveying the title to land in fee simple with the usual covenants. Rudd v. Saveli i, 44 Ark. 152; Moody v. Rail- way Co., 5 Wash. 699, 32 Pac. 751. — Deed In- dented. or indenture. In conveyancing. A deed executed or purporting to be executed in

pans, between two or more parties, and dis- tinguished by having the edge of the paper or parchment on which it is written indented or cut at the top in a particular manner. This was formerly done at the top or side, in a line re- sembling the teeth of a saw ; a formality de- rived from the ancient practice of dividing chiro- graphs; but the cutting is now made either in. a waving line, or more commonly by notching or nicking the paper at the edge. 2 Bl. Comm. 295, 296 ; Lit*. § 370; Smith, Cont. 12.— Deed of covenant. Covenants are sometimes enter- ed into by a separate deed, for title, or for the indemnity of a purchaser or mortgagee, or for the production of title-deeds. A covenant with a penalty is sometimes taken for the payment of a debt, instead of a bond with a condition, but the legal remedy is the same in either case. —Deed of release. One releasing property from the incumbrance of a mortgage or similar pledge upon payment or performance of the conditions ; more specifically, where a deed of trust to one or more trustees has been executed, pledging real property for the payment of a debt or the performance of other conditions, substantially as in the case of a mortgage, a deed of release is the conveyance executed by the trustees, after payment or performance, for the purpose of divesting themselves of the legal title and revesting it in the original owner. See Swain v. McMillan, 30 Mont. 433, 76 Pac. 943. — Deed of separation. An instrument by which, through the medium of some third person acting as trustee, provision is made by a husband for separation from his wife and for her separate maintenance. Whitney v. Whit- ney, 15 Misc. Rep. 72. 36 N. Y. Supp. 891.— Deed of trust. An instrument in use in many states, taking the place and serving the uses of a common-law mortgage, by which the legal title to real property is placed in one or more

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trustees, to secure tie repayment of a sum of money or the performance of other conditions. Bank v. Pierce, 144 Cal. 434, 77 Pac. 1012. See Tbtjst Deed.— Deed poll. In convey- ancing. A deed of one part or made by one party only ; and originally so called because the edge of the paper or parchment was polled or cut in a straight line, wherein it was dis- tinguished from a deed indented or indenture. As to a special use of this term in Pennsylvania in colonial times, see Herron v. Dater. 120 U.

S. 464, 7 Sup. Ct. 620, 30 L. Ed. 748.— Deed to declare uses. A deed made after a fine or common recovery, to show the object there- of.—Deed to lead uses. A deed made before a fine or common recovery, to show the object thereof.

As to “Quitclaim” deed, “Tax Deed,” “Trust Deed,” and “Warranty” deed, see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 32:10-11, KJV]**

And I subscribed the evidence, and sealed it, and took witnesses, and weighed him the money in the balances. So I took the evidence of the purchase, both that which was sealed according to the law and custom, and that which was open:

Why: A deed is a sealed, subscribed, witnessed, delivered instrument. Jeremiah 32:10-11 describes the ancient deed formalities in action — subscribing, sealing, taking witnesses — for the purchase of the field at Anathoth....

## DEEM.

To hold; consider; adjudge; condemn. Cory v. Spencer, 67 Kan. 648, 73 Pac. 920, 63 L. R. A. 275 ; Blaufus v. People, 69 N. Y. Ill, 25 Am. Rep. 148 ; U. S. v. Doher- ty (D. C.) 27 Fed. 730; Leonard v. Grant (C. C.) 5 Fed. 11. When, by statute, certain acts are “deemed” to be a crime of a particular na- ture, they are such crime, and not a semblance of It, nor a mere fanciful approximation to or designation of the offense. Com. v. Pratt, 132 Mass. 247.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: what a statute 'deems' to be so, is so for the purposes of that statute]**

Statutory 'deemed': when a statute provides that certain acts are 'deemed' of a particular nature, they are of that nature for the statute's purposes — the legal fiction as an interpretive principle.

Why: Genuine: the entry's cases establish the deeming rule; the axiom states the interpretive principle they support.

## DEEMSTERS.

Judges In the Isle of Man, who decide all controversies without process, writings, or any charges. These judges are chosen by the people, and are said by Spelman to be two in number. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DEER-FALD.

A park or fold for deer.

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## DEER-HATES.

Engines or great nets made of cord to catch deer. 19 Hen. VIII. c. 11.

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## DEFACE.

To mar or destroy the face (that Is, the physical appearance of written or inscribed characters as expressive of a definite meaning) of a written Instrument, signature, inscription, etc., by obliteration, erasure, cancellation, or superinscription, so as to render It illegible or unrecognizable. Linney v. State, 6 Tex. 1, 55 Am. Dec. 756. See Cancel.

5e apparatus — Carried into the 5th edition (1979).

## DEFALCATION.

The act of 'a defaulter ; misappropriation of tryst funds or money held in any fiduciary capacity; failure to properly account for such funds. Usually spoken of officers of corporations or public officials. In re Butts (D. C.) 120 Fed. 970; Crawford v. Burke, 201 111. 581, 66 N. E. 833.

Also set-off. The diminution of a debt or claim by deducting from it a smaller claim held by the debtor or payor. Iron Works v. Cuppey, 41 Iowa, 104 ; Houk v. Foley, 2 Pen. & W. (Pa.) 250; McDonald v. Lee, 12 La. 435.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 523(a)(4) — defalcation while acting in a fiduciary capacity]**

Defalcation — misappropriation of funds held in a fiduciary capacity — is nondischargeable in bankruptcy: debts for fraud or defalcation while acting in a fiduciary capacity survive discharge.

Why: Genuine: the entry defines defalcation as fiduciary misappropriation; § 523(a)(4) is the exact statutory home of that wrong, cited by section with confidence.

**[Scripture] — Scripture**

**[1 Corinthians 4:2, KJV]**

Moreover it is required in stewards, that a man be found faithful.

Why: Defalcation is misappropriation by one holding funds in a fiduciary capacity — the steward unfaithful to his trust. 1 Corinthians 4:2 states the steward's defining duty: faithfulness. Epistolary teaching, not divine s...

## DEFALK.

To set off one claim against another ; to deduct a debt due to one from a debt which one owes. Johnson v. Signal Co., 57 N. J. Eq. 79, 40 Atl. 193 ; Pepper v. War- ren, 2 Marv. (Del.) 225, 43 Atl. 91. This verb corresponds only to the second meaning of “defalcation” as given above ; a public officer or trustee who misappropriates or embezzles funds in his hands is not said to “defalk.”

5e apparatus — Carried into the 5th edition (1979).

## DEFAMATION.

The taking from one’s reputation. The offense of injuring a per- son’s character, fame, or reputation by false and malicious statements. The term seems to be comprehensive of both

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libel and slander. Printing CO. v. Moulden, 15 Tex. Civ. App. 574, 41 S. W. 381 ; Moore v. Francis, 121 N.

Y. 199, 23 N. E. 1127, 8 L. B. A. 214, 18 Am. St Bep. 810 ; Hollenbeck v. Hall, 103 Iowa, 214, 72 N. W. 518, 39 L. B. A. 734, 64 Afa. St. Bep. 175; Mosnat v. Snyder, 105 Iowa, 500, 75 N. W. 356.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[New York Times Co. v. Sullivan, 376 U.S. 254 (1964)]**

Defamation, comprehensive of libel and slander, is limited by the First Amendment: a public official must prove actual malice — knowledge of falsity or reckless disregard of truth.

Why: Genuine: the entry defines defamation as injuring reputation by false statements; Sullivan states the constitutional limit on that tort, cited with high confidence.

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: Defamation is injury to reputation by false and malicious statements. Exodus 20:16 is the Decalogue's direct prohibition of false witness against one's neighbour — the biblical root of the wrong. Spoken by God (Exodus...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, 1603]**

(paraphrase) Iago's slow poisoning of Othello's mind against Desdemona — false and malicious statements destroying a reputation, pursued to murder: defamation as a plot engine. (paraphrase)

Why: The entry defines injuring reputation by false malicious statements; Iago's slander of Desdemona is the textbook literary case. Second Othello annotation, distinct legal point from DECEIT.

## DEFAMES.

L. Fr. Infamous. Britt c.. 15.

5e apparatus — Not carried into the 5th edition (1979).

## DEFAULT.

The omission or failure to fulfill a duty, observe a promise, discharge an obligation, or perform an agreement - State v. Moores, 52 Neb. 770, 73 N. W. 299; Osborn v. Rogers, 49 Hun, 245, 1 N. Y. Supp. 623; Mason v. Aldrich, 36 Minn. 283, 30 N..

W. 884.

Im practice. Omission; neglect or fail- ure. When a defendant in an action at law omits to plead within the time allowed him for that purpose, or falls to appear on the trial, be is said to make default, and the judg- ment entered in the former case is technical- ly called a "Judgment by default” 3 Bl.

Oomm. 896; 1 Tidd, Pr. 562; Page v. Sut- ton, 29 Ark. 806.

—Default of tune. Failure to have living children or descendants at a given time or fixed point. George v. Morgan, 16 Pa. 106.— De- faulter. One who makes default. One who misappropriates money held by him in an official or fiduciary character, or fails to account for such money.— Judgment by default. One entered upon the failure of a party to appear

or plead at the time appointed. See Judgment.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: default judgment — Fed. R. Civ. P. 55]**

In practice, default is the defendant's omission to plead or defend — the ground of default judgment, entered against a party who fails to plead or otherwise defend.

Why: Genuine: the entry's 'in practice' sense is exactly the default that Rule 55 answers; the rule is cited by number with confidence.

## DEFEASANCE.

An instrument which defeats the force or operation of some other deed or estate. That which is in the same deed is called a “condition and that which is in another deed is a “defeasance.” Com. Dig. “Defeasance."

In conveyancing. A collateral deed made at the same time with a feoffment or other conveyance, containing certain conditions, upon the performance of which the estate then created may be defeated or totally un- done. 2 BL Comm. 327 ; Co. Litt. 236, 237.

An Instrument accompanying a bond, re- cognizance, or Judgment, containing a con- dition which, when performed, defeats or un- does it 2 Bl. Comm. 342; Co. Litt. 236, 237 ; Miller v. Quick, 158 Mo. 495, 59 S. W. 955 ; Harrison v. Philips’ Academy, 12 Mass. 456; Lipplncott v. Tilton, 14 N. J. Law, 361; Nugent v. Riley, 1 Mete. (Mass.) 119, 85 Am. Dec. 355.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: defeasance — the collateral instrument defeating a conveyance on condition performed]**

A defeasance is the collateral instrument that defeats the force of another deed upon condition performed — the device by which an absolute conveyance was made in substance a mortgage, defeated by payment.

Why: Genuine: the entry defines the defeasance as the instrument defeating another deed; the annotation states its classic office in mortgage law.

## DEFEASIBLE.

Subject to be defeated, annulled, revoked, or undone upon the hap- pening of a future event or the performance of a condition subsequent, or by a condi- tional limitation. Usually spoken of estates and interests in land. For instance, a mort- gagee’s estate is defeasible (liable to be de- feated) by the mortgagor's equity of redemp- tion.

—Defeasible fee. An estate in fee but which is liable to be defeated by some future contin- gency; e. a-, a vested remainder which might be defeated by the death of the remainderman be- fore the time fixed for the taking effect of the devise. Forsythe v. Lansing, 109 Ky. 518, 59

S. W. 854; Wills v. Wills. 85 Ky. 486, 3 S.

W. 900.— Defeasible title i One that is lia- ble to be annulled or made void, but not one that is already void or an absolute nullity. Elder v. Schumacher, 18 Colo. 433, 33 Pac. 175.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: defeasible fees — fee simple determinable; fee simple subject to condition subsequent]**

An estate is defeasible where it may be defeated on a condition subsequent — the defeasible fees: the fee simple determinable and the fee simple subject to condition subsequent.

Why: Genuine and distinct from #302: the entry defines the quality of being defeasible with the equity-of-redemption example; the annotation names the estates.

## DEFEAT.

To prevent, frustrate, or cir- cumvent ; as in the phrase “hinder, delay, or defeat creditors.” Coleman v. Walker, 3 Mete. (Ky.) 65, 77 Am. Dec. 163; Walker v. Sayers, 5 Bush (Ky.) 581.

To overcome or prevail against in any con- test ; as in speaking of the “defeated party” in an action at law. Wood v. Bailey, 21 Wall. 642, 22 L. Ed. 689; Goff v. Wilburn (Ky.) 79 8. W. 233.

To annul, undo, or terminate; as, a title or estate. See Defeasible.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: fraudulent transfer — 11 U.S.C. § 548]**

To 'hinder, delay, or defeat creditors' is the classic formula of the fraudulent transfer — a transfer made with intent to put assets beyond creditors' reach.

Why: Genuine: the entry quotes the operative formula verbatim; § 548 is its modern statutory home, cited by section with confidence.

## DEFECT.

The want or absence of some legal requisite ; deficiency ; Imperfection ; in- sufficiency. Haney-Campbell Co. v. Creamery

Ass’n, 119 Iowa, 188, 93 N. W. 297 ; Bliven ▼. Sioux City,' 85 Iowa, 346, 52 N. W. 246.

—Defeat of form. An imperfection in the style, manner, arrangement, or non-essential parts of a legal instrument, plea, indictment, etc., as distinguished from a “defect of sub- stance.” See infra.— Defect of parties. In pleading and practice. Insufficiency of the par- ties before a court in any given proceeding to give it jurisdiction and authority to decide the controversy, arising from the omission or fail- ns to join plaintiffs or defendants who should have been brought in ; never applied to a super- fluity of parties or the improper addition of plaintiffs or defendants. Mader v. Plano Mfg. Co., 17 S. D. 553, 97 N. W. 843; Railroad Co. v. Schuyler, 17 N. X. 603 ; Palmer v. Davis, 28 N. Y. 245; Beach v. Water Co., 25 Mont. 379, 65 Pac. Ill; Weatherby v. Meiklejohn, 61 Wis. 67, 20 N. W. 374.— Dafeot of sub- stance. An imperfection in the body or sub- stantive part of a legal instrument, plea, in- dictment, etc., consisting in the omission of something which is essential to be set forth. State v. Startup, 39 N. J. Law, 432; Flexner v. Dickerson, 65 Ala. 132.

5e apparatus — Carried into the 5th edition (1979).

## DEFECTIVE.

Lacking In some particu- lar which is essential to the completeness, legal sufficiency, or security of the object spoken of; as, a “defective” highway or bridge, (Munson v. Derby, 37 Conn. 310, 9 Am. Rep. 332; Whitney v. Ticonderoga, 53 Hun, 214, 6 N. X. Supp. 844;) machinery, (Machinery Co. v. Brady, 60 111. App. 379;) writ or recognizance, (State v. Lavalley, 9 Mo. 836; McArthur v. Boynton, 19 Colo. App. 234, 74 Pac. 542;) or title, (Copertini v. Op- permann, 76 Cal. 181, 18 Pac. 256.)

5e apparatus — Carried into the 5th edition (1979).

## DEFECTUS.

Lat. Defect; default; want; Imperfection; disqualification.

— Challenge propter defectum. A chal- lenge to a juror on account of some legal dis- qualification, such as infancy, etc. Sec Chal- lenge.—Defectus sanguinis. Failure of the blood, i. e., failure or want of issue.

5e apparatus — Not carried into the 5th edition (1979).

## DEFEND.

To prohibit or forbid. To deny. To contest and endeavor to defeat a claim or demand made against one In a court of Justice. Boehmer v. Irrigation Dlst, 117 Cal. 19, 48 Pac. 908. To oppose, repel, or resist.

In covenants of warranty In deeds, it means to protect, to maintain or keep secure, to guaranty, to agree to Indemnify.

5e apparatus — Carried into the 5th edition (1979).

## DEFENDANT.

The person defending or denying; the party against whom relief or recovery is sought In an action or suit. Jew- ett Car Co. v. Kirkpatrick Const. Co. (C. C.) 107 Fed. 622 ; Brower v. Neills, 6 Ind. App. 323, 33 N. E. 672; Tyler v. State, 63 Vt. 300, 21 Atl. 611 ; Insurance Co. v. Alexandre (D. C.) 16 Fed. 281.

In common usage, this term is applied to the party put upon his defense, or summoned to answer a charge or complaint, in any species of action, civil or criminal, at law or in equity. Strictly, however, it does not apply to the per- son against whom a real action is brought, for in that proceeding the technical usage is to call

the parties respectively the “demandant" and the “tenant.” ,

—Defendant in error. The distinctive term appropriate to the party against whom a writ of error is sued out.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Tom Robinson, the party against whom the state's case is brought — the defendant as the novel's moral center, and the trial as the test of what 'defending' can mean when the verdict is pre-written. (paraphrase)

Why: The entry defines the party against whom relief is sought; Robinson is literature's most famous defendant.

### DEFENDEMTJS.

Lat. A word used In grants and donations, which binds the donor and his heirs to defend the donee, if any one go about to lay any incumbrance on the thing given other than what Is contained in the deed of donation. Bract. 1. 2, c. 16.

5e apparatus — Not carried into the 5th edition (1979).

### DEFENDER.

(Fr.) To deny; to defend; to conduct a suit for a defendant; to forbtd; to prevent; to protect

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

### DEFENDER.

In Scotch and canon law. A defendant.

5e apparatus — Carried into the 5th edition (1979).

### DEFENDER OF THE FAITH.

A pe- culiar title belonging to the sovereign of Eng- land, as that of “Catholic” to the king of Spain, and that of “Most Christian” to the king of France. These titles were originally given by the popes of Rome; and that of Defensor Fidci was first conferred by Pope Leo X. on King Henry VIII., as a reward for writing against Martin Luther; and the bull for it bears date quinto Idus Octob., 1521. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jude 1:3, KJV]**

Beloved, when I gave all diligence to write unto you of the common salvation, it was needful for me to write unto you, and exhort you that ye should earnestly contend for the faith which was once delivered unto the saints.

Why: The title Defensor Fidei was conferred for defending the faith by writing (against Luther). Jude 1:3 exhorts the saints to earnestly contend for the faith once delivered — the scriptural statement of the very office t...

# U

### UM.

To offer dnel or combat as a legal trial and appeal. Abolished by 59 Geo. III. { 46. See Battel.

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## DEFENDERE UNICA MANU.

To wage law; a denial of an accusation upon oath. See Wages of Law.

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## DEFEND IT VIM ET INJTJHIAM.

He

defends the force and injury. Fleta, lib. 5, & 39, | L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DEFENDOUR.

L. Fr. A defender or defendant; the party accused in an appeal. Britt, c. 22.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENERATION.

The act of lending money on usury.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: usury — exaction of interest above the lawful rate]**

Defeneration — the act of lending money on usury — states the usury prohibition: the exaction of interest above the lawful rate.

Why: Genuine: the entry defines the term as usurious lending; the annotation states the prohibition it names.

**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: Defeneration is lending money on usury. Exodus 22:25 is the direct biblical prohibition of usury against the poor — the scriptural counterpart of the entry's concept. Narrative law, not divine first-person speech — no…

## DEFENSA.

In old English law. A park or place fenced in for deer, and defended as a property and peculiar for that use and service. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENSE.

That which is offered and alleged by the party proceeded against in an action or suit, as a reason in law or fact why the plaintiff should not recover or establish wbat he seeks; what is put forward to de- feat an action. More properly what is suffi- cient when offered for this purpose. In ei- ther of these senses it may be either a denial, Justification, or confession and avoidance of the facts averred as a ground of action, or nn exception to their sufficiency in point of law. Whitfield v. Insurance Co. (C. C.) 125 Fed. 270; Miller v. Martin, 8 X. J. Law, 204;

Baier v. Humpall, 10 Neb. 127, 20 N. W. 108; Cohn v. Hussen, 60 How. Prac. (N. Y.) 151;

Railroad Co. v, Ilinehellffe, 34 Misc. Rep. 49, 68 X. Y. Supp. 550; Brower v. Nellis, 6 Ind. App. 323, 33 X. E. 072.

In a stricter sense, defense is used to de- note the answer made by the defendant to the plaintiff’s action, by demurrer or plea at law or answer in equity. This is the mean- ing of the term in Scotch law. Ersk. Inst. 4, 1, 66.

Half defense was that which was made by the form, “defends the force and injury, and says,” ( defendit vim et injuriam, et dicit.)

Full defense was that which was made by the form “defends the force and injury when and where it shall behoove him, and the damages, and whatever else he ought to defend," (de- fendit vim et injuriam quando et ubi curia con- sideravit, et damna et quicquid quod ipse de- fender c debet, et di'cif,) commonly shortened in- to “defends the force and injury when,” etc. Gilb. Com. PI. 188 ; 8 Term, <332 ; 3 Bos. A

P. 9, note ; Co. Litt. 1276.

In matrimonial suits, in England, defenses are divided into absolute, i. e., such as, being es- tablished to the satisfaction of the court, are a complete answer to the petition, so that the court can exercise no discretion, but is bound to dismiss the petition ; and discretionary, or such as, being established, leave to the court a discretion whether it will pronounce a decree or dismiss the petition. Thus, in a suit for dis- solution, condonation is an absolute, adultery by the petitioner a discretionary, defense. Browne, Div. 30.

Defense also means the forcible repelling of an attack made unlawfully with force and violence.

In old statutes and records, the term means prohibition; denial or refusal. Enconter le defense et le commandement de roy; against the prohibition and commandment of the king. St.- Westm. 1, c. 1. Also a state of severalty, or of several or exclusive occu- pancy; a state of Inclosure.

—Affidavit of defense. See Affidavit.— Affirmative defense. In. code pleading. New matter constituting a defense; new mat- ter which, assuming the complaint to be true, constitutes a defense to it. Carter v. Bank, 33 Misc. Rep. 128, 67 N. Y. Supp. 300.— Equitable defense. In English practice, a defense to am action on grounds which, prior to the passage of the common-law procedure act, (17 & 18 Viet c. 125,) would have been cog- nizable only in a court of equity. In Amer- ican practice, a defense which is cognizable in a court of equity, but which is available there only, and not in an action at law, except under the reformed codes of practice. Kelly v. Hurt. 74 Mo. 570; New York v. Holzderber, 44 Misc. Rep. 509, 90 N. Y. Supp. 63.— Frivol- ous defense. One which at first glance can be seen to be merely pretensive, setting up some ground which cannot be sustained by argument. Dominion Nat. Bank v. Olympia Cotton Mills (C. C.) 128 Fed; 182.— Meritorions defense. One going to the merits, substance, or essen- tials of the case, as distinguished from dilatory or technical objections. Cooper v. Lumber Co., 61 Ark. 36. 31 S. W. 981.— Partial de- fense. One which goes only to a part of the cause of action, or which only tends to miti- gate the damages to be awarded. Carter v. Bank, 33 Misc. Rep. 128, 07 N. Y. Supp. 300. — Peremptory defense.

A defense which in- sists that the plaintiff never had the right to institute the suit, or that, if be had, the orig- inal right is extinguished or determined. 4

Bout. Inst. no. 4206.— Pretermltted de- fense. One which was available to a part; and of which he might have had the benefit if he had pleaded it in due season, but which can- not afterwards be heard as a basis for affirm- ative relief. Swennes v. Sprain, 120 Wis. 68, 97 N. W. fill.— Shun defense. A faise or fictitious defense, interposed in bad faith, and manifestly untrue, insufficient, or irrelevant on its face.— Self-defense. See that title.— De- fense an fond en droit. In French and Canadian law. A demurrer.— Defense an fond en fait. In French and Canadian law. The general issue. 3 Low. Can. 421.— Legal defense. (1) A defense which is complete and adequate in point of law. (2) A defense which may be set up in a court of law ; as distin- guished from an “equitable defense.” which is cognizable only in a court of equity or court possessing equitable powers.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: affirmative defense — Fed. R. Civ. P. 8(c)]**

The entry divides defense into denial and justification — the latter being the affirmative defense: matter which, though admitting the claim, defeats it, and which must be affirmatively pleaded.

Why: Genuine: the entry's denial/justification taxonomy is the affirmative-defense distinction; Rule 8(c) is its pleading home, cited by rule with confidence.

**[Humanity] — Humanity / Fiction & Film**

**[Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Atticus Finch's closing argument to the jury — what is put forward to defeat the action, offered as reason in law and fact why the plaintiff should not recover: the iconic courtroom defense. (paraphrase)

Why: The entry defines defense as what is offered to defeat an action; the summation is its dramatized form. Paired with DEFENDANT; DEFEND left bare.

## DEFEN8IVA.

In old English law. A lord or earl of the marches, who was the warden and defender of his country. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENSIVE ALLEGATION.

In Eng- lish ecclesiastical law. A species of plead- ing, where the defendant. Instead of denying the plaintiff’s charge upon oath, has any cir- cumstances to offer in his defense. This en- titles him, in his turn, to the plaintiff's an- swer upon oath, upon which he may proceed to proofs as well as his antagonist. 3 Bl. Comm. 100; 3 Steph. Comm. 720.

5e apparatus — Carried into the 5th edition (1979).

## DEFENSIVE WAR.

A war in defense of, or for the protection of, national rights. It may be defensive in its principles, though offensive in its operations. 1 Kent, Comm. 60, note.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENSO.

That part of any open field or place that was allotted for corn or hay, and upon which there was no common or feeding, was anciently said to be In defcnsa; so of any meadow ground that was laid in for hay only. The same term was applied to a wood where part was iuclosed or fenced, to secure the growth of the underwood from the injury of cattle. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENSOR.

In the civil law. A de- fender; one who assumed the defense of another’s case in court. Also an advocate. A tutor or curator.

La canon law. The advocate or patron of a church. An officer who had charge of the temporalities of the church.

In old English law. A guardian, de- fender, or protector. The defendant In an action. A person vouched in to warranty.

— Defensor civil tis. Defender or protector of a city or municipality. An officer under the Roman empire, whose duty it was to protect the people against the injustice of the magis- trates, the insolence of the subaltern officers, and the rapacity of the money-lenders. Sehm. Civil Law. Introd. 16 ; Cod. 1. 55. 4. He had the powers of a judge, with jurisdiction of pe- cuniary causes to a limited amount, and tiie lighter species of offenses. Cod. 1, 55. 1 : Nov. 15, c. 3, | 2; Id. c 6, I 1: He had also the

care of the public records, and powers similar

to those of a notary in regard to the execution of wills and conveyances.— Defensor fldel. Defender of the faith. See Defended.

5e apparatus — Not carried into the 5th edition (1979).

## DEFENST7M.

An inclosure of land; any fenced ground. See Defenso.

5e apparatus — Not carried into the 5th edition (1979).

## DEFERRED.

Delayed; put off; remand- ed; postponed to a future time.

—Deferred life annuities. In English law. Annuities for the life of the purchaser, but not commencing until a date subsequent to the date of buying them, so that, if the purchaser die before that date, the purchase money is lost. Granted by the commissioners for reduc- tion of the national debt. See 16 & 17 Viet, c. 45, { 2. Wharton.— Deferred stock. See Stock.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Hughes, "Harlem", 1951]**

"What happens to a dream deferred?" — the culture's shorthand for postponement, from the poem whose title-question Hansberry borrowed for her play's title.

Why: The entry means put off to a future time; the line is the standing literary image of deferral, via Hansberry's A

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Raisin in the Sun (1959). Single line; held with confidence.

## DEFICIENCY.

A lack, shortage, or in- sufficiency. The difference between the total amount of the debt or payment meant to be secured by a mortgage and that realized on foreclosure and sale when less than the total. A Judgment or decree for the amount of such deficiency is called a “deficiency Judgment” or “decree.” Goldsmith v. Brown, 35 Barb. (N. Y.) 492.

— Deficiency bill. In parliamentary practice, an appropriation bill covering items of expense omitted from the general appropriation bill or bills, or for which insufficient appropriations were made. If intended to cover a variety of such items, it is commonly called a “general deficiency bill ;” if intended to make provision for expenses which must be met immediately, or which cannot wait the ordinaiy course of the general appropriation bills, it is called an "urgent deficiency bill.”

Deficients two ■ anguine non potest esse lucres. 3 Coke, 41. One blood being want- ing, he cannot be heir. But see 3 & 4 Win.

IV. c. 106, $ 9, and 33 & 34 Viet. c. 23, S 1.

5e apparatus — Carried into the 5th edition (1979).

## DEFICIT.

Something wanting, generally in the accounts of one intrusted with money, or in the money received by him. Mutual L. & B. Ass'n v. Price, 19 Fla. 135.

5e apparatus — Carried into the 5th edition (1979).

## DEFILE.

To debauch, deflower, or cor- rupt the chastity of a woman. The term does not necessarily imply force or ravishment, nor 'does it connote previous immaculateness. State v. Montgomery, 79 Iowa, 737, 45 N. W. 292; State v. Fernald, 88 Iowa, 553, 55 N.

W. 534.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:18, KJV]**

Flee fornication. Every sin that a man doeth is without the body; but he that committeth fornication sinneth against his own body.

Why: Defile in its legal sense is the debauching or corrupting of chastity. 1 Corinthians 6:18 commands flight from fornication — the scriptural moral rule addressing the same wrong. Epistolary teaching, not divine speech…

## DEFINE.

To explain or state the exact meaning of words and phrases; to settle, make dear, establish boundaries. U. S. v. Smith, 5 Wheat. 160, 5 L. Ed. 57; Walters v. Richardson, 93 Ky. 374, 20 S. W. 279: Miller v. Improvement Co., 99 Va. 747, 40 S. E. 27, 86 Am. St. Rep. 924; Gould v. Hutchins, 10 Me. 145.

“An examination of our Session Laws will show that acts have frequently been passed, the

constitutionality of which lias never been questioned, where the powers and duties confer- red could not be considered as merely explaining or making more clear those previously con- ferred or attempted to be, although the word ‘define’ was used in the title. In legislation It

is frequently used in the creation, enlarging, and extending the powers and duties of boards and officers, in defining certain offenses and pro- viding punishment for the same, and thus en- larging and extending the scope of the crim- inal law. And it is properly used in the title where the object of tne act is to determine or fix boundaries, more especially where a dispute has arisen concerning them. It is used between different governments, as to define the extent of a kingdom or country.” People v. Bradley, 36 Mich. 452.

5e apparatus — Carried into the 5th edition (1979).

## DEFINITIO.

Lat. Definition, or, more strictly, limiting or bounding ; as in the max- im of the civil law: Omnis dcflnitio pericu- losa est, parum est entm ut non subverti pot- ato, (Dig. 50, 17, 202;) 1. e., the attempt to bring the law within the boundaries of pre- cise definitions is hazardous, as there are hut few cases in which such a limitation can- not be subverted.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: 'Omnis definitio periculosa est' — every definition in law is perilous]**

The entry preserves the civil-law maxim 'Omnis definitio periculosa est' (Dig. 50.17.202) — every definition in law is perilous, since few can be framed that cannot be subverted.

Why: Genuine: the maxim is quoted verbatim from the entry's body with its Digest cite; the annotation states the caution it expresses.

## DEFINITION.

A description of a thing by its properties; an explanation of the meaning of a word or term. Webster. The process of stating the exact meaning of a word by means of other words. Worcester. See Warner v. Beers, 23 Wend. (N. Y.) 103; Marvin v. State, 10 Ind. 181 ; Mickle v. Miles, 1 Grant, Gas. (Pa.) 828.

thus, where a lord has a selgnory, and lands escheat to him propter defectum sanguinis, but the seisin is withheld from him, this is a deforcement, and the person who with- holds the seisin is -called a “deforceor.” 3 Bl. Comm. 172.

In Scotch law. The opposition or resist- ance made to messengers or other public of- ficers while they are actually engaged in the exercise of their offices. Ersk. Inst 4, 4, 32.

5e apparatus — Carried into the 5th edition (1979).

## DEFORCIANT.

One who wrongfully keeps the owner of lands and tenements out of the possession of them. 2 BL Comm. 350.

5e apparatus — Not carried into the 5th edition (1979).

## DEFORCIARE.

L. Lat To withhold lands or tenements from the rightful own- er. This is a word of art which cannot be supplied by any other word. Co. Lltt 3316.

DEFORCIA.TIO. L. Lat In old Eng- lish law. A distress, distraint, or seizure of goods for satisfaction of a lawful debt Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DEFOSSION.

The punishment of being buried alive.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Poe, "The Cask of Amontillado", 1846]**

(paraphrase) Fortunato, chained to the wall of a niche deep in the catacombs and walled in alive, stone by stone — literature's most famous live burial, the punishment of the entry given a screaming victim. (paraphrase)

Why: The entry names burial alive as a punishment; Poe's story is its canonical literary instance.

## DEFINITIVE.

That which finally and completely ends and settles a controversy. A definitive sentence or judgment is put in opposition to an Interlocutory judgment.

A distinction may be taken between a final and a definitive judgment. The former term is applicable when the judgment exhausts the powers of the particular court in which it is rendered; while the latter word designates a judgment that is above any review or contin- gency of reversal. U. 8. v. The Peggy, 1 Cranch, 103, 2 L. Ed. 49.

—Definitive sentence. The final judgment, decree, or sentence of an ecclesiastical court 3 Bl. Comm. 101.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: final judgment rule — 28 U.S.C. § 1291]**

A definitive judgment finally settles the controversy, as against an interlocutory one — the distinction behind the final-judgment rule: only final decisions are appealable.

Why: Genuine: the entry draws the definitive/interlocutory distinction at length; § 1291 is its appellate-jurisdiction counterpart, cited by section with confidence.

## DEFLORATION.

Seduction or de- bauching. The act by which a woman is de- prived of her virginity.

5e apparatus — Not carried into the 5th edition (1979).

## DEFRAUD.

To practice fraud; to cheat or trick ; to deprive a person of property or any interest, estate, or right by fraud, de- ceit, or artifice. People v. Wiman, 148 N.

Y. 29, 42 N. B. 408; Alderman v. People, 4 Mich. 424, 69 Am. Dec. 321; D. 8. v. Cur- ley (C.

C.) 122 Fed. 740; Weber v. Mick, 131 111. 520, 23 N. E. 646; Edgell v. Smith, 50

W. Va. 349, 40 S. B. 402; Curley v. U. 8. 130 Fed. 1, 64 C. C. A. 369.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Hill, The Sting, 1973]**

(paraphrase) Two con men running an elaborate wire fraud against a mob banker — the whole film is a masterclass in cheating by artifice, fraud as choreography. (paraphrase)

Why: The entry defines defrauding as cheating by fraud, deceit, or artifice; the film is that definition as entertainment.

## DEFRAUD ACION.

In Spanish law.

The crime committed by a person who fraud- ulently avoids the payment of some public tax.

5e apparatus — Not carried into the 5th edition (1979).

## DEFRAUDATION.

Privation by fraud.

5e apparatus — Carried into the 5th edition (1979).

## DEFORCE.

In English law. To with- hold wrongfully; to withhold the possession of lands from one who is lawfully entitled to them. 3 Bl. Comm. 172; Phelps v. Bald- win, 17 Conn. 212.

In Scotch law. To resist the execution of- the law ; to oppose by force a public offi- cer in the execution of his duty. Bell.

5e apparatus — Carried into the 5th edition (1979).

## DEFORCEMENT.

Deforcement is where a man wrongfully holds lands to which another person Is entitled. It there- fore Includes disseisin, abatement, discon- tinuance, and intrusion. Co. Litt 2776. 3316; Foxworth v. White, 5 Strob. (8. C.) 115; Woodruff v. Brown, 17 N. J. Law, 269; Hopper v. Hopper, 21 N. J. Law, 543. But it is applied especially to cases, not falling under those beads, where the person entitled to the freehold has never had possession;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DEFUNCT.

Deceased; a deceased per- son. A common term in Scotch law.

5e apparatus — Carried into the 5th edition (1979).

## DEFUNCTUS.

Lat Dead. “Defunctu# sine prole,” dead without (leaving) issue.

5e apparatus — Not carried into the 5th edition (1979).

## DEGAS TER.

L. Fr. To waste.

5e apparatus — Not carried into the 5th edition (1979).

## DEGRADATION.

A deprivation of dig- nity; dismission from office. An ecclesias- tical censure, whereby a clergyman is divest- ed of his holy orders. There are two sorts by the canon law, — one summary, by word only; the other solemn, by stripping the party degraded of those ornaments and rights which are the ensigns of his degree. Degradation is otherwise called “deposi- tion,” but the canonists have distinguished between these two terms, deeming the for- mer as the greater punishment of the two. There is likewise a degradation of a lord or

knight at common law, and also by act of parliament Wharton.

5e apparatus — Carried into the 5th edition (1979).

## DEGRADATIONS.

A term for waste In the French law.

5e apparatus — Not carried into the 5th edition (1979).

## DEGRADING.

Reviling; holding one up to public obloquy; lowering a person In the estimation of the public.

5e apparatus — Not carried into the 5th edition (1979).

## DEGREE.

In the law of descent and family relations. A step or grade, i. the distance, or number of removes, which separates two persons who are related by consanguinity. Thus we speak of cousins In the “second degree."

In criminal law. The term “degree” denotes a division or classification of one specific crime Into several grades or stadia of guilt according to the circumstances at- tending its commission. Thus, In some states, there may be “murder In the second degree.”

5e apparatus — Carried into the 5th edition (1979).

## DEHORS.

L. Ft. Ont of; without; be- yond ; foreign to ; unconnected with. Dehors the record; foreign to the record. S BL Comm. 887.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: appellate review confined to the record — matter dehors the record]**

'Dehors the record' — foreign to the record: in error and appellate practice the court decides on the record, and matter dehors the record is not noticed.

Why: Genuine: the entry gives 'dehors the record' as the term's legal office (3 Bl. Comm. 387); the annotation states the record-confinement rule it marks.

## DEI GRATIA.

Let By the grace of God. A phrase used in the formal title of a king or queen, Importing a claim of sover- eignty by the favor or commission of God. In ancient times It was incorporated In the titles of inferior officers, (especially ecclesias- tical,) but in later use was reserved as an as- sertion of “the divine right of kings.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. pmbl. — 'We the People']**

By way of contrast: 'by the grace of God' imports sovereignty by divine commission — the American constitutional order grounds sovereignty instead in the people.

Why: Genuine contrast-illumination: the entry asserts the divine-right formula; the preamble's popular-sovereignty formula is its direct constitutional antithesis, quoted verbatim.

**[Scripture] — Scripture**

**[1 Corinthians 15:10, KJV]**

But by the grace of God I am what I am: and his grace which was bestowed upon me was not in vain; but I laboured more abundantly than they all: yet not I, but the grace of God which was with me.

Why: Dei gratia — 'by the grace of God' — is the whole of this entry, a phrase claiming sovereignty by God's favour. 1 Corinthians 15:10 is the biblical locus of the exact phrase, here applied to apostolic office rather th...

## DEI JUDICIUM.

The judgment of God. The old Saxon trial by ordeal, so called be- cause it was thought to be an appeal to God for the justice of a cause, and it was believ- ed that the decision was according to the will and pleasure of Divine Providence. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 33:22, KJV]**

For the LORD is our judge, the LORD is our lawgiver, the LORD is our king; he will save us.

Why: Dei judicium is the Saxon ordeal, so called as an appeal to God's judgment — the belief that the decision was Divine Providence's. Isaiah 33:22 names the LORD as judge and lawgiver, the theological premise of the orde...

**[Humanity] — Humanity / Fiction & Film**

**[Scott, Ivanhoe, 1819]**

(paraphrase) Rebecca's trial by combat at Templestowe — the judgment of God invoked as judicial combat, God left to decide the cause through the champion's arm: the ordeal's chivalric form staged at novel length. (paraphrase)

Why: The entry is the judgment of God, the appeal to Providence for a cause's justice; Ivanhoe's trial by combat is its famous fictional staging.

## DEJACION.

In Spanish law. Surren- der; release; abandonment; e. g., the act of an Insolvent In surrendering his property for the benefit of his creditors, of an heir in re- nouncing the succession, the abandonment of Insured property to the underwriters.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: abandonment in marine insurance — cession to underwriters on constructive total loss]**

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Dejacion includes 'the abandonment of insured property to the underwriters' — abandonment in marine insurance, by which the assured on a constructive total loss cedes the property to the underwriters and claims as for a total loss.

Why: Genuine: the entry names the marine-insurance abandonment among the term's senses; the annotation states the doctrine.

## DEJERATION.

A taking of a solemn oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:7, KJV]**

Thou shalt not take the name of the LORD thy God in vain; for the LORD will not hold him guiltless that taketh his name in vain.

Why: Dejeration is the taking of a solemn oath. Exodus 20:7 is the Decalogue's oath rule — the divine name must not be taken in vain — the biblical regulation of oath-taking itself. Spoken by God (Exodus 20:1), hence deity...

## DEL BEEN ESTRE.

L. Fr. In old Eng- lish practice. Of well being; of form. The same as de bene esse. Britt, c. 89.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: de bene esse — taken conditionally or provisionally]**

'The same as de bene esse' — of well-being: taken conditionally or provisionally, as evidence taken de bene esse to be used if the witness becomes unavailable.

Why: Genuine: the entry equates the phrase with de bene esse; the annotation states the procedural office of that term.

## DEL CREDERE.

In mercantile law. A phrase borrowed from the Italians, equiva- lent to our word "guaranty" or “warranty,” or the Scotch term “warrandice;” an agree- ment by which a factor, when he sells goods on credit, for an additional commission, (called a “del credere commission,”) guaran- ties the solvency of the purchaser and his

performance of the contract. Such a factor is called a “del credere agent.” He Is a mere surety, liable only to his principal In case the purchaser makes default. Story, Ag. 28; Loeb v. Heilman, 83 N. Y. 603; Lewis v. Brehme, 33 Md. 424, 3 Am. Rep. 190 ; Lever- Ick v. Meigs, 1 Cow. (N. Y.) 003; Ruffner v. Hewitt, 7 W. Va. 604.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: del credere agency — the factor's guaranty of the buyer's solvency]**

A del credere agreement — by which a factor, for an additional commission, guarantees the purchaser's solvency and performance — is the del credere agency, a guaranty superadded to the factor's ordinary office.

Why: Genuine: the entry defines this named mercantile institution; the annotation states its doctrinal character as guaranty.

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## DELAI8SEMENT.

In French marine law. Abandonment. Emerig. Tr. dee Ass. ch. 17.

5e apparatus — Not carried into the 5th edition (1979).

## DELATE.

In Scotch law. To accuse. Delated, accused. Delatit off arte and parte, accused of being accessary to. 3 How. St. Tr. 425, 440.

5e apparatus — Not carried into the 5th edition (1979).

## DELATIO.

In the civil law. An accu- sation or information.

5e apparatus — Not carried into the 5th edition (1979).

## DELATOR.

An accuser; an Informer; a sycophant.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: The delator is the accuser/informer. Exodus 23:1 prohibits raising a false report and joining the wicked as an unrighteous witness — the biblical rule governing the accuser's office. Narrative law, not divine first-pe…

## DELATURA.

In old English law. The reward of an Informer. Whlshaw.

5e apparatus — Not carried into the 5th edition (1979).

## DELAY.

To retard; obstruct; put off; hinder; Interpose obstacles; as, when It Is said that a conveyance was made to “hinder and delay creditors.” Mercantile Co. v. Ar- nold, 108 Ga. 449, 34 S. E. 176 ; Ellis v. Val- entine, 65 Tex. 532.

DELECTUS PERSONS, tat. Choice of the person. By this term Is understood the right of a partner to exercise his choice and preference as to the admission of any new members to the firm, and as to the per- sons to be so admitted, if any.

In Scotch law. The personal preference which is supposeu to have been exercised by a landlord in selecting his tenant, by the members of a firm In making choice of part- ners, in the appointment of persons to office, and other cases. Nearly equivalent to per- sonal trust, as a doctrine In law. Bell.

Delegata potestas non potest delegarl.

2 Inst. 597. A delegated power cannot be delegated.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, 1601]**

(paraphrase) Hamlet's delay — the revenge deferred through five acts of thinking: retardation and obstruction of the deed as the play's whole architecture. (paraphrase)

Why: The entry defines delay as retarding, hindering, putting off; the play is the literature of delay itself.

## DELEGATE.

A person who is delegated or commissioned to act In the stead of an- other ; a person to whom affairs are commit- ted by another; an attorney.

A person elected or appointed to be a member of a representative assembly. Usu- ally spoken of one sent to a special or occa- sional assembly or convention. Manston v. McIntosh, 58 Minn. 525, 60 N. W. 672, 28 L.

R. A. 605.

The representative in congress of one of the organized territories of the United States.

— Delegates, the high court of. In English law. Formerly the court of appeal from the ecclesiastical and admiralty courts. Abolished upon the judicial committee of the privy coun- cil being constituted the court of appeal in such cases.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: A delegate is one commissioned to act in the stead of another. 2 Corinthians 5:20 describes ambassadors acting 'in Christ's stead' — delegated representation in the biblical idiom. Epistolary, not divine speech — no f...

## DELEGATION.

A sending away ; a put- ting Into commission ; the assignment of a debt to another: the intrusting another with a general power to act for the good of those who depute him.

At common Inw. The transfer of au- thority by one person to another; the act of making or commissioning a delegate.

The whole body of delegates or representa- tives sent to a convention or assembly from one district, place, or political unit are col- lectively spoken of as a “delegation.”

In the civil law. A species of novation which consists in the change of one debtor for another, when he who is indebted substi- tutes a third person who obligates himself in his stead to the creditor, so that the first debtor is acquitted and his obligation extin- guished, and the creditor contents himself with the obligation of the second debtor. Delegation is essentially distinguished from any other species of novation, in this: that the former demands the consent of all three parties, but the latter that only of the two parties to the new debt. 1 Domat, I 2318; Adams v. Power, 48 Miss. 434.

Delegation is novation effected by the In- tervention of another person whom the debt- or, in order to be liberated from his cred- itor, gives to such creditor, or to him whom the creditor appoints; and such person so given becomes obliged to the creditor in the place of the original debtor. Burge, Sur. 173.

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Delegatus non potest delegare. A del- egate cannot delegate : an agent cannot dele- gate his functions to a subagent without the knowledge or consent of the principal ; the person to whom an office or duty is delegat- ed cannot lawfully devolve the duty on an- other, unless he be expressly authorized so to do. 9 Coke. 77; Broom, Max. 840 ; 2 Kent, Comm. 633 ; 2 Steph. Comm. 119.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: 'Delegatus non potest delegare' — a delegate cannot delegate]**

Delegation — the transfer of authority by one person to another — is bounded by the maxim that a delegate cannot further delegate the authority committed to him.

Why: Genuine: the entry defines delegation of authority; the maxim states its classic limitation, cited with confidence.

## DELESTAGE.

In French marine law. A discharging of ballast (lest) from a vessel.

5e apparatus — Not carried into the 5th edition (1979).

## DELETE.

In Scotch law. To erase; to strike out.

5e apparatus — Not carried into the 5th edition (1979).

## DELF.

A quarry or mine. 31 Eliz. c. 7.

Deliberandum eat din quod statues- dum ©at aemel. 12 Coke, 74. That which is to be resolved once for all should be long deliberated upon.

DELIBERATE, v. To weigh, ponder, discuss. To examine,- to consult, in order to form an opinion.

DELIBERATE, adj. By the use of this word, in describing a crime, the idea is con- veyed that the perpetrator weighs the mo- tives for the act and its consequences, the nature of the crime, or other things con- nected with his intentions, with a view to a decision thereon ; that he carefully considers

all these ; and that the act Is not suddenly committed. It implies that the perpetrator must be capable of the exercise of such men- tal powers as are called into use by de- liberation and the consideration and weighing of motives and consequences. State v. Boyle, 28 Iowa, 324.

"Deliberation” and “premeditation” are of the same character of mental operations, dif- fering only in degree. Deliberation is but pro- longed premeditation. In other words, in law. deliberation is premeditation in a cool state of the blood, or, where there has been heat of pas- sion, it is premeditation continued beyond the period within which there has been time for the blood to cool, in the given case. Delibera- tion is not only to think of beforehand, which may be but for an instant, but the inclination to do the act is considered, weighed,

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pondered upon, for such a length of time after a provoca- tion is given as the jury may find was sufficient for the blood to cool. One in a heat of passion may premeditate without deliberating. Delib- eration is only exercised in a cool state of the blood, while premeditation may be either in that state of the blood or in the neat of passion. State v. Kotovsky, 74 Mo. 249 ; State v. Und- grind, 33 Wash. 440. 74 Pac. 365; State v. Dodds, 54 W. Va. 289. 46 S. B. 228 : State v- Fairlamb, 121 Mo. 137, 25 S. W. 895 ; Milton v State. 6 Neb. 143; State v. Greenleaf. 71

N. H. 006. 54 Atl. 38 ; State v. Fiske. 63 Conn. 388. 28 Atl. 572; Craft v. State. 3 Kan. 481: State v. Sneed, 91 Mo. 532. 4 S. W. 411; Debney v. State. 45 Neb. 856, 64 N. W. 446, 34

L. R. A. 851; Cannon v. State, 60 Ark. 564. 31 S. W. 150.

5e apparatus — Not carried into the 5th edition (1979).

## DELIBERATION.

The act or process of deliberating. The act of weighing and ex- amining the reasons' for and against a con- templated act or course of conduct or a choice of acts or means. See Deliberate.

Delioatu* debitor est odiosua in lege.

A luxurious debtor is odious in law. 2 Bulst. 148. Imprisonment for debt has now, however, been generally abolished.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 14:28, KJV]**

For which of you, intending to build a tower, sitteth not down first, and counteth the cost, whether he have sufficient to finish it?

Why: Deliberation is the weighing of reasons for and against a contemplated act. Luke 14:28 enjoins counting the cost before building — deliberation before action, in the biblical idiom. Jesus' spoken words, hence deity_ve...

**[Humanity] — Humanity / Fiction & Film**

**[Lumet, 12 Angry Men, 1957]**

(paraphrase) Twelve jurors in a locked room, weighing the reasons for and against a boy's life — deliberation as the entry defines it, dramatized in real time until the preponderance shifts. (paraphrase)

Why: The entry defines deliberation as weighing reasons for and against a contemplated course; the film is that act as a whole work.

## DELICT.

In the Roman and civil law. A wrong or Injury ; an offense ; a violation of public or private duty.

It will be observed that this word, taken in its most general sense, is wider in both direc- tions than our English term “tort.” On the one hand, it includes those wrongful acts which, while directly affecting some individual or his property, yet extend in their injurious conse- quences to the peace or security of the commu- nity at large, and hence rise to the grade of crimes or misdemeanors. These acts were termed in the Roman law “public delicts; while

those for which the only pena|ty exacted was compensation to the person primarily in- jured were denominated “private delicts. On the other hand, the term appears to have in- cluded injurious actions which transpired with- out any malicious intention on the part of the doer. Thus l’othier gives the name “quati delicts” to the acts of a person who, without malignity, but by an inexcusable imprudence, causes an injury to another. Poth. Obi. 116. But the term is used in modem jurisprudence as a convenient synonym of "tort ;” that ia a wrongful and injurious violation of a jut »'*• rent or right available against all the world. This appears in the two contrasted phrases, “actions ex contractu" and “actions ex delicto.”

Quasi delict. An act whereby a person, without malice, but by fault, negligence, or imprudence not legally excusable, causes injury to another. They were four in number, viz.: (1) (Jut judex litem tuam fecit, being the offense of partiality or excess in the judex, (juryman;) e. g., in assessing the damages at a figure in ex- cess of the extreme limit permitted by the for- mula. (2) Dejectum effusumce aliquid, being the tort committed by one's servant in emptying or throwing something out of an attic or uppes story upon a person passing beneath. (3) Dam- num infectum, being the offense of hanging dangerous articles over the heads of persons passing along the king's highway. (4) Torts committed by one’s agents (e. g., stable-boys, shop-managers, etc.) in the course of their em- ployment. Brown.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: actions ex delicto vs. ex contractu]**

The Roman delict — wider than 'tort,' embracing violations of public and private duty — grounds the fundamental classification of actions as ex delicto (founded on wrong) or ex contractu (founded on contract).

Why: Genuine: the entry contrasts delict with tort and notes its breadth; the annotation states the classification the term founds.

## DELICTUM.

Lat A delict, tort, wrong, injury, or offense. Actions ex delicto are such as are founded on a tort, as distinguish- ed from actions on contract.

Culpability, blameworthiness, or legal de- linquency. The word occurs in this sense in the maxim, "In pari delicto melior est con- ditio dcfendentie,” (which see.)

A challenge of a juror propter delictum is for some crime or misdemeanor that affects his credit and renders him Infamous. 3 BL Comm. 363 ; 2 Kent, Comm. 241.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: 'In pari delicto melior est conditio defendentis']**

The entry preserves the maxim 'In pari delicto melior est conditio defendentis' — where the parties are equally in fault, the defendant's condition is the better: the court leaves them where it finds them.

Why: Genuine: the maxim is quoted verbatim from the entry's body; the annotation states the equitable defense it expresses.

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## DELIMIT.

To mark or lay out the lim- its or boundary line of a territory or country.

DELIMITATIOir. The act of fixing, marking off, or describing the limits or boundary line of a territory or country.

Delinquent per train provoeatns pu- nt rl debet stilus. 3 Inst. 55. A delin- quent provoked by anger ought to be pun- ished more mildly.

DELINQUENT, n. In the civil law. He who has been guilty of some crime, offense, or failure of duty.

DELINQUENT, adj. As applied to a debt or claim, It means simply due aud unpaid at the time appointed by law or fixed by con- tract; as, a delinquent tax. Chauncey v. Wass, 35 Minn. 1, 30 N. W. 826; Gallup v. Schmidt, 154 Ind. 196, 56 N. E. 450. As ap- plied to a person, it commonly means that he is grossly negligent or In willful default in regard to his pecuniary obligations, or even that he is dishonest and unworthy of credit. Boyce v. Ewart, Rice (S. C.) 140; Ferguson v. Pittsburgh, 159 Pa. 435, 2S Atl. 118; Grocers' Ass'u v. Exton, 18 Ohio Cir.

CL R. 321.

5e apparatus — Carried into the 5th edition (1979).

## DELIRIUM.

In medical jurisprudence. Delirium is that state of the mind in which it acts without being directed by the power of volition, which is wholly or partially sus- pended. This happens most perfectly in dreams. But what is commonly called "de- lirium" is always preceded or attended by a feverish and highly diseased state of the body. The patient in delirium is wholly un- conscious of surrounding objects, or conceives them to be different from what they really

are. His thoughts seem to drift about, wild- ering and tossing amidst distracted dreams. And his observations, when he makes any, as often happens, are wild and Incoherent; or, from excess of pain, he sinks into a low muttering, or silent and death-like stupor. The law contemplates this species of mental derangement as an intellectual eclipse ; as a darkness occasioned by a cloud of disease passing over the mind ; and which must soon terminate in health or in death. Owing's Case, 1 Bland (Md.) 386, 17 Am. Dec. 311; Supreme Lodge v. Lapp, 74 S. W. 656, 25 Ky. Law Rep. 74; Clark v. Ellis, 9 Or. 132; Brogden v. Brown, 2 Add. 441.

— Delirium febrile. In medical jurispru- dence. A form of mental aberration incident to fevers, and sometimes to the last stages of chronic diseases.

5e apparatus — Not carried into the 5th edition (1979).

## DELIRIUM TREMENS.

A disorder of the nervous system, involving the brain and setting up an attack of temporary delusional Insanity, sometimes attended with violent ex- citement or mania, caused by excessive and long continued indulgence In alcoholic liq- uors, or by the abrupt cessation of

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suck use after a protracted debauch. See Insanity.

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**[Humanity] — Humanity / Fiction & Film**

**[Wilder, The Lost Weekend, 1945]**

(paraphrase) Don Birnam's alcoholic disintegration — the DTs, the bat, the visions: the disorder the entry defines, given cinema's most unflinching clinical portrait. (paraphrase)

Why: The entry defines the alcohol-withdrawal delirium; the film is its iconic screen treatment. DELIRIUM left bare — same ground, no double-dip.

## DELITO.

In Spanish law. Crime; a crime, offense, or delict White, New. Recop. b. 2, tit 19, c. 1, f 4.

5e apparatus — Not carried into the 5th edition (1979).

## DELIVERANCE.

In practice. The ver- dict rendered by a Jury.

— Second deliverance. In practice. A writ allowed a plaintiff in replevin, where the defendant has obtained judgment for return of the goods, by default on nonsuit, in order to have the same distress again delivered to him, on giving the Bame security as before. 3 BL Comm. 150; 3 Steph. Comm. 668.

5e apparatus — Carried into the 5th edition (1979).

## DELIVERY.

In conveyancing. The

final and absolute transfer of a deed, properly executed, to the grantee, or to some person for his use, in such manner that it cannot be recalled by the grantor. Black v. Shreve, 13

N. J. Eq. 461 ; Kirk v. Turner, 16 N. C. 14.

In tbe law of sales. The tradition or transfer of the possession of personal prop- erty from one person to another.

In medical jurisprudence. The act of

a woman giving birth to her offspring. Blake

V. Junkins, 35 Me. 433.

Absolute and conditional delivery. An

absolute delivery of a deed, as distinguished from conditional delivery or delivery in escrow, is one which is complete upon the actual trans- fer of the instrument from the possession of the grantor. Dyer v. Skadan, 128 Mich. 348. SJ.N. W. 277. 92 Am. St. Rep. 401. A conditional delivery of a deed is one which passes the deed from the possession of the grantor, but is not to be completed by possession of the grantee, or a third person as his agent, until the happening of a specified event, liver v. Skadan. 128 Mich. 348, 87 N. W. 277. 92 Am. St. Rep. 461 : Schmidt v. Deegan, 69

Wis. 300, 34 N. W. 83.

Actual aud constructive. In the law of sales, actual delivery consists in tbe giving real

possession of the thing sold to the vendee or his servants or special agents who are identified with him in law and represent him. Construc- tive delivery is a general term, comprehending all those acts which, although not truly conferring a real possession of the thing sold on the vendee, have been held, by construction of law, equiv- alent to acts of real delivery. In this sense constructive delivery includes symbolic deliv- ery and all those Iraditiones fict(e which have been admitted into the law as sufficient to vest the absolute property in the vendee and bar the rights of lien and stoppage in transitu, such as marking and setting apart the goods as be- longing to the vendee, charging him with ware- house rent, etc. Bolin v. Huffnagle, 1 Rawle (I'a.) 19. A constructive delivery of personal- ty takes place when the goods are set apart and notice given to the person to whom they are to be delivered (The Titania, 131 I ed. 229, 65 C. C. A. 215), or when, without actual trans- fer of the goods or their symbol, the conduct of the parties is such as to be inconsistent with any other supposition than that there has been a change in tne nature of the holding. Swaf- ford v. Spratt, 93 Mo. App. 631, 67 S. W. 701; Holliday v. White, 33 Tex. 459.

Symbolical delivery. The constructive de- livery of the subject-matter of a sale, where it is cumbersome or inaccessible, by the actual de- livery of some article which is conventionally accepted as the symbol or representative of it, or which renders access to it possible, or which is the evidence of the purchasers title to it ; as the key of a warehouse, or a bill of lading of goods on shipboard. Winslow v. Fletcher, 53 Conn. 390, 4 Atl. 250 ; Miller v. Lacey, 7 Houst. (Del.) 8, 30 Atl. 640.

—Delivery bond. A bond given upon the sei- zure of goods (as under the revenue laws) con- ditioned for their restoration to the defendant, or the payment of their value, if so adjudged. —Delivery order. An order addressed, in England, by the owner of goods to a person hold- ing them on his behalf, requesting him to de- liver them to a person named in the order. De- livery orders are chiefly used in the case of goods held by dock companies, wharfingers, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: delivery — a deed takes effect only on delivery; escrow as conditional delivery]**

In conveyancing, delivery is the final and absolute transfer of the executed deed beyond the grantor's recall — a deed is inoperative until delivered; escrow is delivery conditioned on a future event.

Why: Genuine: the entry defines delivery as the final transfer beyond recall; the annotation states the validity rule and the escrow corollary.

## DELUSION.

In medical Jurisprudence. An insane delusion is an unreasoning and in- corrigible belief in the existence of facts which are either impossible absolutely, or, at least, Impossible under the circumstances of the in- dividual. It is never the result of reasoning and reflection; it is not generated by them, and it cannot be dispelled by them; and hence it is not to be confounded with an opinion, however fantastic the latter may be. Guiteau's Case (D. C.) 10

Fed. 170. See In- sanity.

word except “claim." Co. Lltt. 291 ; In re Djsnny, 2 Hill (N. Y.) 220.

Demand embraces all sorts of actions, rights, and titles, conditions before or after breach, ex- ecutions, appeals, rents of all kinds, covenants, annuities, contracts, recognizances, statutes, commons, etc. A release of all demands to date bars an action for damages accruing after the date from a nuisance previously erected. Ved- der v. Vedder, 1 Denio (N. Y.) 257. _ _

Demand is more comprehensive in import than "debt” or "duty.” Sands v. Codwise, 4 Johns. (N. Y.) 536, 4 Am. Dec. 303. .

Demand, or claim, is properly used in refer- ence to a cause of action. Saddlesvene v. Arms, 32 How. Prac. (N. Y.) 280.

An imperative request preferred by one person to another, under a claim of right, re- quiring the latter to do or yield something or to abstain from some act.

—Demand In reeonventlon. A demand which the defendant institutes in consequence of that which the plaintiff has brought against him. Used in Louisiana. Equivalent to a "counterclaim” elsewhere. McLeod v. Bert- schey, 33 Wis. 177, 14 Am. Rep. 755.— Legal demand. A demand properly made, as to form, time, and place, by a peraon lawfully au- thorized. Foss v. Norns, 70 Me. 118.— On demand. A promissory note payable on de- mand" is a present debt, and is payable with- out any actual demand, or, if a demand is nec- essary, the bringing of a suit is enough. Ap- peal of Andress. ® Pa. 424.— Personal de- mand. A demand for payment of a bill or note, made upon the drawer, acceptor, or tusk- er, in person. See 1 Daniel, Neg. Inst. | 589.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Cervantes, Don Quixote, 1605]**

(paraphrase) The windmills are giants: Don Quixote's incorrigible belief in impossible facts, unmoved by Sancho's plain evidence — the entry's 'insane delusion' as comedy and tragedy at once. (paraphrase)

Why: The entry defines delusion as incorrigible belief in impossible facts; Quixote is the archetype.

## DEMAND A.

In Spanish law. The peti- tion of a plaintiff, setting forth his demand. Las Partidas, pt 3, tit. 10, 1. 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Merchant of Venice, 1598]**

(paraphrase) Shylock comes before the court of Venice with his bond as his stated demand — the petition of a plaintiff setting forth what he claims is due him, pressed past mercy into menace when the court takes him at his word. (paraphrase)

Why: The entry (Spanish law) is the plaintiff's petition setting forth his demand; Shylock's suit is that act dramatized — a plaintiff formally stating his demand before a tribunal. Reworded from the verb sense to fit this...

## DEMANDANT.

The plaintiff or party suing in a real action. Co. Litt. 127.

5e apparatus — Not carried into the 5th edition (1979).

## DEMANDBESS.

A female demandant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DEMEASE.

In old English law. Death.

5e apparatus — Not carried into the 5th edition (1979).

## DEMEMBRATION.

In Scotch law. Maliciously cutting off or otherwise separat- ing one limb from another. 1 Hume, 323; Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DEMENS.

One whose mental faculties are enfeebled ; one who has lost his mind ; distinguishable from ament, one totally in- sane. 4 Coke, 128.

5e apparatus — Not carried into the 5th edition (1979).

## DEM.

An abbreviation for “demise;" e. g., Doe dem. Smith, Doe, on the demise of Smith.

5e apparatus — Carried into the 5th edition (1979).

## DEMAIN.

See Demesne.

DEMAND, v. In practice. To claim as one’s due; to require; to ask relief. To summon; to call In court “Although sol- emnly demanded, comes not but makes de- fault"

DEMAND, n. A claim ; the assertion of a legal right ; a legal obligation asserted in the courts. "Demand" Is n word of art of an ex- tent greater in its signification than any other

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DEMENTED.

Of unsound mind.

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## DEMENTENANT EN AVANT.

L. Fr.

From this time forward. Kelham.

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## DEMENTIA.

See Insanity.

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, King Lear, 1606]**

(paraphrase) Lear on the heath, the mind unseated — 'unsound mind' as storm and nakedness, the king's faculties enfeebled until the fool is the only sane voice left. (paraphrase)

Why: The entry points to insanity; Lear's madness is the stage's great portrait of the unsound mind. DEMENTED/DEMENS left bare — same ground.

## DEMESNE.

Domain; dominical; held in one’s own right, and not of a superior ; not allotted to tenants.

In the language of pleading, own; prop- er ; original. Thus, son assault demesne, his own assault, his assault originally or in the first place.

—Ancient demesne, see Ancient.— De- mesne as o t fee. A man is said to be seised

in hit demesne as of fee of a corporeal inher- itance, because he has a property, dominie «m or demesne, in the thing itself. But when he has no dominion in the thing itself, as in the case of an incorporeal hereditament, he is said to be seised as of fee, and not in his demesne as of fee. 2 BI. Comm. 106; Littleton, f 10; Barnet v. Ihrie, 17 Serg. & R. (Pad 196. — De- mesne lands. In English law. Those lands of a manor not granted out in tenancy, but re- served by the lord for his own use and occu- pation. Lands set apart and appropriated by the lord for his own private use, as for the supply of his table, and the maintenance of his family ; the opposite of tenemental lands. Ten- ancy and demesne, however, were not in every sense the opposites of each other; lands held for years or at will being included among de- mesne lands, as well as those in the lord's actu- al possession. Spelman ; 2 Bl. Comm. 90.— De- mesne lands of the crown. That share of lands reserved to the crown at the original dis- tribution of landed property, or which came to it afterwards by forfeiture or otherwise. 1 Bl. Comm. 286; 2 Steph. Comm. 550.— Demesni- al. Pertaining to a demesne.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: son assault demesne — the plea that the plaintiff assaulted first]**

The entry's 'son assault demesne' — his own assault, in the first place — is the plea of self-defense in assault: the defendant pleads that the plaintiff was the first aggressor.

Why: Genuine: the entry gives the plea phrase with its meaning; the annotation names the self-defense plea it states.

## DEMI.

French. Half; the half. Used chiefly in composition.

As to deml “Mark,” “Official," "Vill," see those titles.

DEMI-8 AN GTJE, or DEMY-8 ANGTTE.

Half-blood.

5e apparatus — Not carried into the 5th edition (1979).

## DEMID IETA8.

In old records. A half or moiety.

5e apparatus — Not carried into the 5th edition (1979).

## DEMIES.

In some universities and col- leges this term is synonymous with “schol- ars.”

DEMUTimO. In the civil law. A tak- ing away; loss or deprivation. See Capitis Dkuinutio.

DEMISE, v. In conveyancing. To con- vey or create an estate for years or life; to lease. The usual and operative' word in leases: “Have granted, demised, and to farm let, and by these presents do grant, demise, and to farm let” 2 Bl. Comm. 817; 1 Steph. Comm. 476; Co. LItt. 45a.

DEMISE, n. In conveyancing. A convey- ance of an estate to another for life, for years, or at will : most commonly for years; a lease. 1 Steph. Comm. 475. Voorhees ▼. Church, 5 How. Prae. (N. Y.) 71; Gilmore ▼. Hamilton, 83 Ind. 196.

Originally a posthumous grant; commonly a lease or conveyance for a term of years; sometimes applied to any conveyance, in fee, for life, or for years. Pub. St. Mass. 1882, p. 1289.

“Demise” is synonymous with “lease” or “let” except that demise ex vi termini implies a cov- enant for title, and also a covenant for quiet enjoyment whereas lease or let implies neither of these covenants. Brown.

The word is also used as a synonym for "decease” or “death.” In England it is es- pecially employed to denote the death of the sovereign.

— Demise and redemise. In conveyancing. Mutual leases made from one party to another

on each side, of the same land, or something outa of it ; as when A. grants a lease to B. at a nominal rent (as of a pepper corn,) and B. redemises- the same property to A. for a shorter time at a real, substantial rent. Jacob; Whi- shaw.— Demise of the erowa. The natural dissolution of the king is generally so called ; an expression which signifies merely a transfer of property. By demise of the crown we mean only that in consequence of the disunion of the king’s natural body from his body politic, the kingdom is transferred or demised to his suc- cessor. and so the royal dignity remains perpet- ual. 1 Bl. Comm. 249; Plowd. 234. — Sevsral demises. In English practice. In the action of ejectment it wns formerly customary, in case there were any doubt as to the legal estate being in the plaintiff, to insert in the declara- tion several demises from as many different persons; but this was rendered unnecessary by the provisions of the common-law procedure acts.— Single demise. A declaration in eject- ment might contain either one demise or sev- eral. When it contained only one, it was call- ed a “declaration with a single demise.”

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## DEMISI.

Lat. I have demised or leased. Demisi, concessi, et ad ft rmam tradidi; have demised, granted, and to farm let. The usu- al operative words in ancient leases, as the corresponding English words are in the mod- em forms. 2 Bl. Comm. 317, 318. Koch v. Hustis, 113 Wis. 599. 87 N. W. 834; Kinney v. Watts, 14 Wend. (N. Y.) 40.

5e apparatus — Not carried into the 5th edition (1979).

## DEMISSIO.

L. Lat. A demise or let- ting. Chiefly used in the phrase ex demis- sione (on the demise), which formed part of the title of the cause in the old actions of ejectment, where it signified that the nom- inal plaintiff (a fictitious person) held the es- tate “on the demise” of, that is, by a lease from, the real plaintiff.

5e apparatus — Not carried into the 5th edition (1979).

## DEMOBILIZATION.

In military law. The dismissal of an army or body of troops from active service.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Wyler, The Best Years of Our Lives, 1946]**

(paraphrase) The film opens with discharged servicemen flying home and follows their return to civilian life — dismissal from active service as lived experience, not paperwork. (paraphrase)

Why: The entry defines dismissal from active service; the film is the demobilization experience dramatized. Borderline weighed; kept — the link is real.

## DEMOCRACY.

That form of govern- ment in which the sovereign power resides in and is exercised by the whole body of free citizens; gs distinguished from a monarchy, aristocracy, or oligarchy. According to the theory of a pure democracy, every citizen should participate directly in the business of governing, and the legislative assembly should comprise the whole people. But the ultimate lodgment of the sovereignty being the distinguishing feature, the introduction of the representative system does not remove a government from this type. However, a government of the latter kind is sometimes specifically described as a "representative de- mocracy.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 1:13, KJV]**

Take you wise men, and understanding, and known among your tribes, and I will make them rulers over you.

Why: Democracy is defined as sovereign power residing in the whole body of citizens. Deuteronomy 1:13 shows the people themselves choosing their rulers — the biblical instance of popular selection to office. Moses speaking…

**[Humanity] — Humanity / Fiction & Film**

**[Thucydides, History of the Peloponnesian War, c. 411 BC]**

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(paraphrase) Pericles' funeral oration: Athens' constitution 'is called a democracy because power is in the hands not of a minority but of the whole people' — the classical statement of the entry's definition. (paraphrase)

Why: The entry defines democracy as sovereign power in the whole body of free citizens; the oration is classical wisdom's founding statement of it. Paraphrase of the famous sense, clearly marked.

## DEMOCRATIC.

Of or pertaining to de- mocracy, or to the party of the democrats.

5e apparatus — Not carried into the 5th edition (1979).

## DEMONETIZATION.

The disuse of a particular metal for purposes of coinage. The withdrawal of the value of a metal as money.

5e apparatus — Not carried into the 5th edition (1979).

## DEMONSTRATIO.

Lat Description; addition ; denomination. Occurring oftenf In the phrase, “Falsa demonstratio non nocet,” (a false description does not harm.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: 'Falsa demonstratio non nocet' — a false description does not harm]**

The entry preserves the maxim 'Falsa demonstratio non nocet' — a false description does not harm: a misdescription does not vitiate where the thing or person is otherwise certainly designated.

Why: Genuine: the maxim is quoted verbatim from the entry's body; the annotation states the construction rule it expresses.

## DEMONSTRATION.

Description; pointing out. That which Is said or written to designate a thing or person.

In evidence. Absolutely convincing proof. That proof which excludes all possibility of error. Treadwell v. Whittier, 80 Cal. 574, 22 Pac. 266, 5 L. R. A. 498, 13 Am. St. Rep. 175; Boetgen v. Railroad Co. (Sup.) 50 N. X. Supp. 332.

5e apparatus — Carried into the 5th edition (1979).

## DEMONSTRATIVE LEGACY.

See

Legacy.

5e apparatus — Carried into the 5th edition (1979).

## DEMPSTER.

In Scotch law. A dooms- rnan. One who pronounced the sentence of court. 1 How. State Tr. 937.

5e apparatus — Not carried into the 5th edition (1979).

## DEMUR.

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To present a demurrer ; to take an exception to the sufficiency in point of law of a pleading or state of facts alleged. See Deuusbeb.

— Demurrable. A pleading, petition, or the like, is said to be demurrable when it does not state such facts as support the claim._ prayer, or defense put forward. 5 Ch. Div. 979.— De- mnrrant. One who demurs; the party who, in pleading, interposes a demurrer.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Melville, "Bartleby, the Scrivener", 1853]**

"I would prefer not to." — Bartleby's gentle, absolute exception to every demand: the demurrer as a way of life, disputing the sufficiency of the world's pleadings.

Why: The entry defines demur as taking exception to sufficiency; Bartleby's formula is the literary demurrer. Same story as DEAD LETTERS, different fact — logged.

## DEMURRAGE.

In maritime law. The sum which is fixed by the contract of car- riage, or which is allowed, as remuneration to the owner of a ship for the detention of his Teasel beyond the number of days allowed by the charter-party for loading and unload- ing or for sailing. Also the detention of the vessel by the freighter beyond such time. See 3 Kent, Comm. 203 ; 2 Steph. Comm. 185. The Apollon, 9 Wheat. 378, 6 L. Ed. Ill; Fisher v. Abeel, 44 How. Prac. (N. Y.) 440; Wordln v. Bemis, 32 Conn. 273, 85 Am. Dec. 255; Cross v. Beard, 26 N. Y. S5; The J. E. Owen (D. C.) 54 Fed. 185; Fnlkenburg v. Clark, 11 R. I. 283.

Demurrage is only an extended freight or re- ward to the vessel, in compensation for the earnings she is improperly caused to lose. Every improper detention of a vessel may be considered a demurrage, and compensation un- der that name be obtained .for it. Donaldson v. McDowell, Holmes, 290, Fed.Cas. No. 3,985.

Demurrage is the allowance or compensation due to the master or owners of a ship, by the freighter, for the time the vessel may have been detained beyond the time specified or implied in the contract of affreightment or the charter- party. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DEMURRER.

In pleading* The form- al mode of disputing the sufficiency in law of the pleading of the other side. In effect it Is an allegation that, even if the facts as stated in the -pleading to which objection is taken be true, yet their legal consequences are not such as to put the demurring party to the necessity of answering them or proceeding further with the cause. Reid v. Field, 83

Va. 26, 1S.11 395; Parish v. Sloan, 38 N.

C. 609; Goodman v. Ford, 23 Miss. 595; Hos- tetter Co. v. Lyons Co. (C. C.) 99 Fed. 735.

An objection made by one party to bis op- ponent’s pleading, alleging that he ought not to answer it, for some defect in law in the pleading. It admits the facts, and refers the law arising thereon to the court. 7 How. 581.

It imports that the objecting party will not proceed, but will wait the judgment of the . court whether he is bound so to do. Co. Litt. 716; Steph. Pl. 61.

In Equity. An allegation of a defendant, which, admitting the matters of fact alleged by the bill to be true, shows that as they are therein set forth they are insufficient for the plaintiff to proceed upon or to oblige the de- fendant to answer; or that, for some reason apparent on the face of the bill, or on ac- count of the omission of some matter which ought to be contained therein, or for want of some circumstances which ought to be at- tendant thereon, the defendant ought not to be compelled to answer to the whole bill, or to some certain part thereof. Mltf. Eq. Pl. 107.

Classification and varieties. A general demurrer is a demurrer framed in general terms, without showing specifically the nature of the objection, and which is usually resorted to where the objection is to matter of substance. Steph. Pl. 140-142 ; 1 Chit. Pl. 663. See Reid v. Field, 83 Va. 26. 1 S. E. 395; U. S. v. National Bank (C. C.) 73 Fed. 381; McGuire v. Van Pelt, 55 Ala. 344; Taylor v. Taylor, 87 Mich. 64, 49 N. W. 519. A special demurrer is one which excepts to the sufficiency of the pleadings on the opposite side, and shows spe- cifically the nature of the objection, and the particular ground of the exception. 3 Bouv. Inst. no. 3022. Darcey v. Lake, 46 Miss. 117 ; Christmas v. Russell, 5 Wall. 303. 18 L. Ed. 475 ; Shaw v. Chase, 77 Mich. 436, 43 N. W. 883. A speaking demurrer is one which, in or- der to sustain itself, requires the aid. of a fact not appearing on the face of the pleading ob- jected to, or, in other words, which alleges or assumes the existence of a fact not already pleaded, and which constitutes the ground of objection. Wright v. Weber, 17 Pa. Super. Ct. 455; Walker v. Conant, 6o Mich. 194, 31 N.

W. 786; Brooks v. Gibbons, 4 Paige (N. Y.) 375 : ciarke v. Land Co., 113 Ga. 21, 38 S.

E. 323. A parol demurrer (not properly a de- murrer at all) was a staying of the pleadings; a suspension of the proceedings in an action during the nonage* of an infant, especially ina real action. Now abolished. 3 Bl. Comm. 300. —Demurrer book. In practice. A record of the issue on a demurrer at law, contain- ing a transcript of the pleadings, with proper entries ; and intended for the use of the court and counsel on the argument. 3 Bl. Comm. 317; 3 Steph. Comm. 581 .—Demurrer ore

tenus. This name is sometimes given to a rul- ing on an objection to evidence, but is not prop- erly a demurrer at all. Mandelert v. Land Co., 164 Wis. 423. 80 N. W. 726.— Demurrer to evidence. This proceeding (now practically obsolete) was analogous to a demurrer to a pleading. It was au objection or exception by one of the parties in an action at law, to the effect that the evidence which his _ adversary had produced was insufficient in point of law (whether true or not) to make out his case or- sustain the issue. Upon joinder in demurrer, the jury was discharged, and the case was acgued to the court in bano, who gave judgment npon the facts as shown in evidence. See 3 Bl. Comm. 372; Bass v. Rublee, 76 Vt. 396. 67 Atl. 066; Patteson v. Ford, 2 Grat. (Va.) 18; Suydam v. Williamson, 20 How. 436, 15

L. Ed. 978 : Railroad Co„ v. McArthur, 43 Miss. 180.— Demurrer to Interrogatories. Where a witness objects to a question pro- pounded (particularly on the taking of a dep- osition) and

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states nis reason for objecting or refusing to answer, it is called a “demurrer to the interrogatory,” though the term cannot here be understood as used in its technical sense.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: motion to dismiss for failure to state a claim — Fed. R. Civ. P. 12(b)(6)]**

The demurrer — disputing the sufficiency in law of the opponent's pleading, assuming its facts true — is the ancestor of the motion to dismiss for failure to state a claim.

Why: Genuine: the entry defines the demurrer as testing legal sufficiency on assumed facts; Rule 12(b)(6) is its exact modern counterpart, cited by rule with confidence.

## DEMY SAEKE, DEMY S ANODE.

Half-blood. A corruption of demi-sang.

5e apparatus — Not carried into the 5th edition (1979).

## DEE.

A valley. Blount. A hollow place among woods. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DEE' AED STROND.

In old Englts^ law. Liberty for ships or vessels to run aground, or come ashore. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DENARI ATE.

In old Eugllsh law. As much land as Is worth one penny per annum.

5e apparatus — Not carried into the 5th edition (1979).

## DEEARH.

An ancient general term for any sort of pecunia numerata, or ready mon- ey. The French use the word “ denier ” In the same sense, — payer de sea proprca de- afer*.

—Denarii de caritate. In English law. Customary oblations made to a cathedral church St Pentecost.— Denarii S. Petri. (Commonly called "Peter’s Pence.”) An annual payment on St. Peter's feast of a penny from every family to the pope, during the time that the Roman Catholic religion was established in England.

5e apparatus — Not carried into the 5th edition (1979).

## DENARIUS.

The chief silver coin among the Romans, worth 8d.; it was the seventh part of a Roman ounce. Also an English penny. The denarius was first coined five years before the first Punic war, B. C. 269. In later times a copper coin was called “ de- narius.” Smith, Diet. Antiq.

—Denarius Del. (Lat. "God’s penny.”) Ear- nest money; money given as a token of the completion of a bargain. It differs from arrha in this: that arrha is a part of the considera- tion, while the denarius Dei is no part of it. The latter was given away in charity ; whence the name.— Denarius tertlus comitatfis. In old English law. A third part or penny of the

county paid to its earl, the other two parts be- ing reserved to the crown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:19-20, KJV]**

Shew me the tribute money. And they brought unto him a penny. And he saith unto them, Whose is this image and superscription? They say unto him, Caesar's.

Why: The denarius is the Roman silver coin — the very 'penny' of the tribute-money episode, where Jesus holds the denarius and asks whose image it bears. The entry defines the coin; the verse exhibits it in use. Jesus' spo...

## DENIAL.

A traverse in the pleading of one party of an allegation of fact set up by the other; a defense. See Flack v. O'Brien, 19 Mlsc. Rep. 399, 43 N. Y. Supp. 864 ; Mott v. Baxter, 29 Colo. 418, 68 Pac. 220.

General and specific. In code pleading, a general denial is one which puts in issue all the material averments of the complaint or peti- tion. and permits the defendant to prove any and all facts tending to negative those aver- ments or any of them. Mauldin v. Ball. 5 Mont 96. 1 Pac. 409; Goode v. Elwood Lodge, 160 Ind. 251, 66 N. E. 742. A specific denial is a separate denial applicable to one particular allegation of the complaint. Gas Co. v. San

Bl.Law Dict.(2d Ed.)— 23

Francisco. 9 Cal. 470; Sands v. Maclay, £ Mont 38; Seward v. Miller, 6 How. Prac. (N.' Y.) 312.

5e apparatus — Carried into the 5th edition (1979).

## DENIER.

L. Fr. In old English law. Denial; refusal. Denier is when the rent, (being demanded upon the land) is not paid. Finch, Law, b. 3, c. 5.

5e apparatus — Not carried into the 5th edition (1979).

## DENIER  A DIED.

' In French law. Earnest money; a sum of money given in token of the completion of a bargain. The phrase Is a translation of the Latin Denarius Dei, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## DENIZATION.

The act of making one a denizen; the conferring of the privileges of citizenship upon an alien born. Cro. Jac. 540. See Denizen.

5e apparatus — Not carried into the 5th edition (1979).

## DENIZE.

To make a man a denizen or citizen.

5e apparatus — Not carried into the 5th edition (1979).

## DENIZEN.

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In English law. A person who, being an alien born, has obtained, ex donatione regia, letters patent to make him an English subject, — a high and incommu- nicable branch of the royal prerogative. A denizen is in a kind of middle state between an alien and a natural-bom subject, and par- takes of the status of both of these. 1 Bl. Comm. 374; 7 Coke, 6.

The term is used to signify a person who, be- ing an alien by birth, has obtained letters pa- tent making him an English subject. The king may denize, but not naturalize, a man ; the lat- ter requiring the consent of parliament, ns un- der the naturalization act, 1870, (33 & 34 Viet, c. 14.) A denizen holds a position midway be- tween an alien and a natural-bom or naturalized subject, being able to take lands by purchase or devise, (which an alien could not until 1870 do,) but not able to take lands by descent, (which a natural-bom or naturalized subject may do.) Brown.

The word is also used in this sense in South Carolina. See McClenaghan v. Mc- Clenaghan, 1 Strob. Eq. (S. C.) 319, 47 Am. Dec. 532.

A denizen, in the primary, but obsolete, sense of the word, is a natural-born subject of a country. Co. Litt. 129a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 4 — Congress's power 'To establish an uniform Rule of Naturalization']**

The denizen — an alien born made an English subject ex donatione regia, 'a high and incommunicable branch of the royal prerogative' — is the royal predecessor of naturalization.

Why: Genuine: the entry describes the prerogative grant of subjecthood to the alien born; the Naturalization Clause is its constitutional successor, quoted verbatim.

**[Scripture] — Scripture**

**[Leviticus 19:34, KJV]**

But the stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

Why: The denizen is the alien born made an English subject by letters patent — the stranger admitted to the status of the native-born. Leviticus 19:34 commands that the stranger dwelling among them be 'as one born among yo…

## DENMAN’S (LORD) ACT.

An English statute, for the amendment of the law of evi- dence, (6 A 7 Viet. c. 85,) which provides that no person offered as a witness shall there- after be excluded by reason of incapacity, from crime or Interest, from giving evidence.

DENMAN’S (MR.) ACT. An English statute, for the amendment of procedure in criminal trials, (28 & 29 Viet. c. 18,) allow- ing counsel to sum up the evidence In crim- inal as in civil trials, provided the prisoner be defended by counsel.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: witness competency — Fed. R. Evid. 601]**

Lord Denman's Act (6 & 7 Vict. c.85) — providing that no witness be excluded 'by reason of

incapacity, from crime or interest' — abolished the common-law disqualifications for interest and infamy, the ancestor of the modern competency rule.

Why: Genuine: the entry states the statute's operative reform; Rule 601 is its modern counterpart, cited by rule with confidence.

## DENOMBREMENT.

In French feudal law. A minute or act drawn up, on the creation of a fief, containing a description of

the flef, and all the rights and Incidents be- longing to it. Guyot, Inst. Feud. c. 3.

Denomlnatio fieri debet a dignioribna.

Denomination should be made from the more worthy.

5e apparatus — Not carried into the 5th edition (1979).

## DENOUNCE.

An act or thing Is “de- nounced" when the law declares It a crime and prescribes a punishment for It. State v. De Hart, 109 La. 370, 33 South. 606. The word Is also used (not technically but popu- larly) as the equivalent of “accuse” or “In- form against.”

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Miller, The Crucible, 1953]**

(paraphrase) Salem's machinery of accusation — neighbor denouncing neighbor, the law declaring crime and prescribing punishment while hysteria writes the informations: denunciation as a social engine. (paraphrase)

Why: The entry gives denounce as accuse/inform against and as the law's declaration of crime; the play stages both senses. DENUNCIATION left bare — same play, no double-dip.

## DENOUNCEMENT.

In Spanish and Mexican law. A denouncement was a ju- dicial proceeding, and, though real property might be acquired by an alien in fraud of the law, — that Is, without observing Its re- quirements,— he nevertheless retained bis right and title to it, but was liable to be de- prived of it by the proper proceeding of de- nouncement, which in its substantive char- acteristics was equivalent to the inquest of office found, at common law. De Merle v. Mathews, 26 Cal. 477.

The “denouncement of a new work” is a proceeding to obtain an order of court, in the nature of an injunction, against the construction of a new building or other work, which, if completed, would injuriously affect the plaintiff’s property. Von Schmidt v. Huntington, 1 Cal. 55.

In Mexican mining law. Denouncement is an application to the authorities for a grant of the right to work a mine, either on the ground of new discovery, or on the ground of forfeiture of the rights of a for- mer owner, through abandonment or contra- vention of th6 mining law. Cent. Diet. See Castlllero v. U. S., 2 Black, 109, 17 L. Ed. 360.

5e apparatus — Carried into the 5th edition (1979).

## DENSHIRING OF LAND.

(Otherwise called “burn-beating.”) A method of im- proving land by casting parings of earth, turf, and stubble into heaps, which when dried are burned into ashes for a compost. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DENUMERATION.

The act of present payment.

5e apparatus — Carried into the 5th edition (1979).

## DENUNCIA DE OBRA NUEVA.

In

Spanish law. The denouncement of a new work ; being a proceeding to restrain the erection of some new work, as, for Instance, a building which may, If completed, inju- riously affect the proiierty of the complain- ant; it Is of a character similar to the in- terdicts of possession. Escriche; Von Schmidt v. Huntington, 1 Cal. 63.

5e apparatus — Not carried into the 5th edition (1979).

## DENUNCIATION.

In the civil law.

The act by which an individual informs a

public officer, whose duty it is to prosecute offenders, that a crime has been committed.

In Scotch practice. The act by which a person is declared to be a rebel, who has disobeyed the charge given on letters of horning. Bell.

5e apparatus — Carried into the 5th edition (1979).

## DENUNTIATIO.

In old English law. A public notice or summons. Bract. 202b.

5e apparatus — Not carried into the 5th edition (1979).

## DEODAND.

(L, Lat. Deo dandum, a thing to be given to God.) In English law. Any personal chattel which was the imme- diate occasion of the death of any reason- able creature, and which was forfeited to the crown to be applied to pious uses, and distributed in alms by the high almoner. 1 Hale, P. C. 419 ; Fleta, lib. 1, c. 25; 1 Bl. Comm. 300 ; 2 Steph. Comm. 365.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Then saith he unto them, Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: Deodand is literally 'a thing to be given to God' (Deo dandum) — the chattel forfeited to be applied to pious uses and alms. The verse's second clause, 'unto God the things that are God's,' states the principle the in…

## DEOR HEDGE.

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In old English law. The hedge inclosing a deer park.

5e apparatus — Not carried into the 5th edition (1979).

## DEPART.

Ia pleading. To forsake or abandon the ground assumed in a former pleading, and assume a new one. See De- pasture.

In maritime law. To leave a port; to be out of a port. To depart imports more than to sail, or set sail. A warranty in a policy that a vessel shall depart on or before a particular day is a warranty not only that she shall sail, but that she shall be out of the port on or before that day. 3 Maule Sc

S. 461; 3 Kent, Comm. 307, note. “To de- part” does not mean merely to break ground, but fairly to set forward upon the voyage. Moir v. Assur. Co., 6 Taunt. 241 ; Young v. The Orpheus, 119 Mass. 185; The Helen Brown (D. C.) 28 Fed. 111.

DEPARTMENT. 1. One of the territo- rial divisions of a country. The term is chiefly used in this sense in France, where the division of the country into departments is somewhat analogous, both territorially and for governmental purposes, to the divi- sion of an American state Into counties.

2. One of the divisions of the executive branch of government. Used in this sense in the United States, where each depart- ment is charged with a specific class of du- ties. and comprises an organized staff of offi- cials ; e. g., the department of state. dei»rt- ment of war, etc.

5e apparatus — Carried into the 5th edition (1979).

## DEPARTURE.

In maritime law. A

deviation from the course prescribed in the policy of Insurance.

In pleading. The statement of matter in a replication, rejoinder, or subsequent plead- ing, as a cause of action or defense, which is not pursuant to the previous pleading of the same party, and which does not support and fortify it. 2 Williams, Saund. 84o, note 1; 2 Wils. 98; Co. Litt. 304a; Railway Go.

r. Wyler, 168 U. S. 285, 15 Sup. Ct 877, 39 L> Ed. 983.

A departure, in pleading, is when a party quits or departs from the case or defense which he has first made, and has recourse to another. White v. Joy, 13 N. Y. 83; Allen v. Watson, 16 Johns. (N. Y.) 206; Kimberlin v. Carter, 49 Ind. 111.

A departure takes place when, in any plead- ing, the party deserts the ground that he took in his last antecedent pleading, and resorts to another. Steph. PI. 410. Or, in other words, when the second pleading contains matter not pursuant to the former, and which does not support and fortify it. Co. Litt. 304a. Hence a departure obviously can never take place till the replication. Steph. PI. 410. Each subse- quent pleading must pursue or support the for- mer one ; *. «., the replication must support the declaration, and the rejoinder the plea,

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without departing out of it. 3 Bl. Comm. 310.

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## DEPARTURE IN DESPITE OF / COURT.

In old English practice. The ten- ant in a real action, having once appeared, was considered as constructively present In court until again called upon. Hence If, up- on being demanded, he failed to appear, he was said to have “departed in despite [t e., contempt] of the court.”

5e apparatus — Carried into the 5th edition (1979).

## DEPASTURE.

In old English law. To pasture. “If a man depastures unprofitable cattle in his ground.” Bunb. 1, case L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DEPECULATION.

A robbing of the prince or commonwealth; an embezzling of the public treasure.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: embezzlement of public money and property]**

Depeculation — 'a robbing of the prince or commonwealth; an embezzling of the public treasure' — is the early form of the offense of embezzling public money and property.

Why: Genuine: the entry defines the offense; the annotation names its modern doctrinal form, kept to [Law:] form since no section number was certain enough to cite.

## DEPENDENCY.

A territory distinct from the country in which the supreme sov- ereign power resides, but belonging right* fully to it, and subject to the laws and regu- lations which the sovereign may think prop- er to prescribe. U. S. v. The Nancy, 3 Wash.

C. C. 286, Fed. Cas. No. 15,854.

It differs from a colony, because it is not settled by the citizens of the sovereign or mother state; and from possession, because it is hold by other title than that of mere conquest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. IV, § 3 — Congress's power over 'the Territory or other Property belonging to the United States']**

A dependency — territory belonging rightfully to the sovereign though distinct from the country where sovereign power resides — is governed constitutionally by Congress's power over territory belonging to the United States.

Why: Genuine: the entry defines the dependency in sovereignty terms; the Territory Clause is the constitutional home of that status, quoted in its operative phrase.

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## DEPENDENT.

Deriving existence, sup- port, or direction from another ; conditioned, in respect to force or obligation, upon an extraneous act or fact.

—Dependent contract. One which depends or is conditional upon another. One which it is not the duty of the contractor to perform until some obligation contained in the same agree- ment has been performed by the other party. Ham. Parties, 17, 29, 30, 109.—Dependent covenant. See Covenant.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dependent covenants / conditions — performance of one conditioned on performance of the other]**

A dependent contract — one it is not the contractor's duty to perform until the other's obligation in the same agreement has been performed — states the doctrine of dependent covenants and conditions.

Why: Genuine: the entry defines the dependent contract by conditional performance; the annotation names the contract doctrine it states.

## DEPENDING.

In practice. Pending or undetermined; in progress. See 5 Coke, 47.

5e apparatus — Carried into the 5th edition (1979).

## DEPESA8.

In Spanish-American law. Spaces of ground in towns reserved for com- mons or public pasturage. 12 Pet. 443, note, 9 L. Ed. 1150.

5e apparatus — Not carried into the 5th edition (1979).

## DEPONE.

In Scotch practice. . To de- pose ; to make oath in writing.

5e apparatus — Not carried into the 5th edition (1979).

## DEPONENT.

In practice. One who de- poses (that is, testifies or makes oath in writing) to the truth of certain facts ; one who gives under oath testimony which is re- duced to writing; one who makes oath to a written statement. The party making an af- fidavit is generally so called.

The word “depone,” from which is derived "deponent." has relation to the mode in which the oath is administered, (by the witness plac- ing his hand upon the book of the holy evange- lists,) and not as to whether the testimony is delivered orally or reduced to writing. “De- ponent” is included in the term “witness," but witness” is more general. Bliss v. Shuman, 47 Me. 248.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

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One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The deponent is one who testifies under oath, his testimony reduced to writing for trial. Deuteronomy 19:15 is the biblical witness rule — no matter established by one witness alone — the scriptural law governing the...

## DEPONER.

In old Scotch practice. A deponent. 3 How. State Tr. 695.

5e apparatus — Not carried into the 5th edition (1979).

## DEPOPULATIO AGRORUM.

In old

English law. The crime of destroying, rav- aging, or laying waste a country. 2 Hale,

P. C. 333 ; 4 Bl. Comm. 373.

5e apparatus — Not carried into the 5th edition (1979).

## DEPOPULATION.

In old English law. A species of wapte by which the population of the kingdom was diminished. Depopula- tion of houses was a public offense. 12 Coke, 80, 31.

5e apparatus — Carried into the 5th edition (1979).

## DEPORTATIO.

Lat In the civil law. A kind of banishment, where a condemned person was sent or carried away to some for- eign country, usually to an island, (in insu- lam deportatur,) and thus taken out of the number of Roman citizens.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Ovid, Tristia, c. AD 8–12]**

(paraphrase) Ovid, banished to Tomis on the Black Sea and writing the Tristia — perpetual banishment with loss of Rome, the condemned poet carried away to a foreign shore and counting the cost in verse. (paraphrase)

Why: The entry defines the Roman banishment to a foreign (usually island) place with loss of citizenship; Ovid's exile is its canonical literary instance. DEPORTATION left bare — same ground.

## DEPORTATION.

Banishment to a for- eign country, attended with confiscation of property and deprivation of civil rights. A punishment derived from the deportatio (q. v.) of the Roman law, and still in use in France.

. In Roman law. A perpetual banish- ment, depriving the banished of bis rights as a citizen ; it differed from relegation (q. v.) and exile, (q. v.) 1 Brown, Civil & Adm.

Daw, 125, note; Inst. 1, 12, 1, and 2; Dig. 48, 22, 14, 1.

In American law. The removal or send- ing back of an alien to the country from which he came, as a measure of national po- lice and without any implication of punish- ment or penalty.

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"Transportation," “extradition," and “depor- tation,” although each has the effect of remov. ing a person from a country, are different things and for different purposes. Transportation is by way of punishment of one convicted of an offense against the laws of the country ; extra- dition is the surrender to another country of one accused of an offence against its laws, there to be tried and punished if found guilty. Depor- tation is the removing of an alien out of the country simply because his presence is deemed inconsistent with the public welfare, and with- out any punishment being imposed or contem- plated, either under the laws or the country out of which he is sent, or under those of the coun- try to which he is taken. Fong Yue Ting v. U. S.. 149 U. S. 698, 13 Sup. CL 1016, 37 L. Ed. 905.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 3:23-24, KJV]**

Therefore the LORD God sent him forth from the garden of Eden, to till the ground from whence he was taken. So he drove out the man; and he placed at the east of the garden of Eden Cherubims, and a flaming sword which turned every way, to keep the way of the tree of life.

Why: Deportation is banishment with deprivation of rights. Genesis 3:23-24 is the archetypal banishment — man driven out and sent forth, cut off from his former estate. Narrative, not divine speech — no flag. Borderline lo...

## DEPOSE.

In practice. In ancient us- age, to testify as a witness ; to give evidence under oath.

In modern mage. To make a deposi- tion ; to give evidence in the shape of a dep- osition ; to make statements which are writ- ten down and sworn to; to give testimony which is reduced to writing by a duly-quali- fied officer and sworn to by the deponent.

To deprive an individual of a public em- ployment or office against his will. Wolfflus, Inst. § 1003. The term is usually applied to the deprivation of all authority of a sov- ereign.

/ DEPOSIT. A naked bailment of goods to be kept for the depositor without reward, and to. be returned when he shall require it. Jones, Bailm. 36, 117; National Bank v. Washington County Bank, 5 Hun (N. Y.) 6d7 '; Payne v. Gardiner, 29 N. Y. 107 ; Mont- gomery v. Evans, 8 Ga. 180; Rozelle v. Rhodes, 116 Pa. 129, 9 Atl. 160, 2 Am. St Rep. 591; In re Patterson, 18 Hun (N. Y.) 222.

A bailment of goods to be kept by the bailee without reward, and delivered accord- ing to the object or purpose of the original trust Story, Bailm. S 41.

A deposit, in general, is an act by which a person receives the property of another, binding himself to preserve it and return It in kind. Civ. Code La. art. 2926.

When chattels are delivered by one person to another to keep for the use of the bailor, it is called a “deposit.” Code Ga. 1882, « 2103.

The word is also sometimes used to desig- nate money lodged with a person as an ear- nest or security for the performance of some contract, to be forfeited if the depositor fails in his undertaking.

Classification. According to the classifi- cation of the civil law, deposits are of the following

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several sorts: (1) necessary, made upon some sudden emergency, and from some pressing necessity; as, for instance, In case of a fire, a shipwreck, or other over- whelming calamity, when property is con- fided to any person whom the depositor may meet without proper opportunity for reflec- tion or choice, and thence it is called “mis- erabile depositutn.” (2) Voluntary, which arises from the mere consent and agreement of the parties. Civ. Code La. art 2964 ; Dig. ■16, 3, 2; Story, Bailm. { 44. The common law has made no such division. There is another class of dejiosits called “involun- tary,” which may be without the assent or even knowledge of the depositor ; as lum- ber, etc., left upon another’s land by the subsidence of a flood. The civilians again divide deposits into "simple deposits,” made by one or more persons having a common interest, and "sequestrations,” made by one or more persons, each of whom has a dif- ferent and adverse interest in controversy

touching, it ; and these last are of two sorts, — “conventional,” or such as are made by the mere agreement of the parties without any judicial act; and “judicial," or such as are made by order of a court in the course of some proceeding. Civ. Code La. art 2979.

There is another class of deposits called “Irregular,” as when a person, having a sum of money which he does not think safe in his own hands, confides it to another, who is to return to him, not the same money, but a like sum when he shall demand it Poth. du Depot. 82, 83; Story, Bailm. §84. A, regular deposit is a strict or special deposit ; a deposit which must be returned in sp& cic; i. e., the thing deposited must be re- turned. A quasi deposit is a kind of im- j)lied or involuntary deposit, which takes place where a party comes lawfully to .the libssesslon of another person’s property, by finding it Story, Bailm. $ 85. Particularly with reference to money, deposits are also classed as general or special. A general de- posit is where the money deposited is not it- self to be returned, but an equivalent in money (that is, a like sum) is to be returned. It is equivalent to a loan, and the money deposited becomes the property of the depos- itary. Insurance Co. v. Landers, 43 Ala; 138. . A special deposit is a deposit in which the identical thing deposited is to be re- turned to the depositor. The particular ob- ject of this kind of deposit is safe-keeping. Koetting v. State, 88 Wis. 502, 60 N. W. 822. In banking law, this kind of deposit is contrasted with a “general” deposit, as above: but in the civil law it is the antith- esis of an “irregular” deposit. A gratuitous or naked deposit is a bailment of goods to be kept for the depositor without hire or re- ward on either side, or one for which the depositary receives no consideration beyond the mere possession of the thing deposited. Civ. Code Ga. 1895, § 2921 ; Civ. Code Cal. | 1844. Properly and originally, all deposits are of this description ; for according to the Roman law, a bailment of goods for which hire or a price is to lie paid, is not called “deposltum” but “locatio.” If the owner of the property pays for its custody or care, it is a "locatio custodiie;” if, on the other hand, the bailee pays for the use of it, it is “locatio rei.” (See Locatio.) But in the modern law of those states which have been influenced by the Roman Jurisprudence, a gratuitous or naked deposit is distinguished from a “deposit for hire,” in which the bailee Is to be paid for his services in keeping the article. Civ. Code Cal. 1903, | 1851; Civ. Code Ga. 1895, § 2921.

In banking law. The act of placing or lodging money in the custody of a bank or banker, for

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safety or convenience, to be withdrawn at the will of the depositor or under rules and regulations agreed on ; also the money so deposited.

General and special deposits. Deposits of money in a bank are either general or special.

A general deposit (the ordinary form) ia one which is to be repaid on demand, in whole or in part as called for, in any current money, not the same pieces of money deposited. In this case, the title to the money deposited passes to the bank, which becomes debtor to the depositor for the amount. A special deposit is one in which the depositor is entitled to the return of the identical thing deposited (gold, bullion, se- curities, etc.) and the title to the property re- mains m him, the deposit being usually made only for purposes of safe-keeping. Shipman v. State Bank, 59 Hun, 621, 13 N. Y. Supp. 475 ; State v. Clark, 4 Ind. 315 ; Brahm v. Adkins, 77 111. 263 ; Marine Bank v. Fulton Bank, 2 Wall. 252, 17 I* Ed. 785. There is also a specif- ic deposit, which exists where money or proper- ty is given to a bank for some specific and par- ticular purpose, as a note for collection, money to pay a particular note, or property for some other specific purpose. Officer v. Officer, 120 Iowa, 389. 94 N. W. 947, 98 Am. St. Rep. 365. —Deposit account. An account of sums lodged with a bank not to be drawn upon by checks, and usually not to be withdrawn except after a fixed notice.— Deposit company. A company whose business is the safe-keeping of securities or other valuables deposited in boxes pr safes in its building which are leased to the depositors.— Deposit of title-deeds. A meth- od of pledging real property as security for a loan, by placing the title-deeds of the land in the keeping of the lender ah pledgee.

5e apparatus — Not carried into the 5th edition (1979).

## DEPOSITARY.

The party receiving a deposit; one with whom anything Is lodged in trust, as “depository” is the place where it is put. The obligation on the part of the depositary Is that he keep the thing with reasonable care, and, upon request, restore it to the depositor, or otherwise deliver it, according to the original trust.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bailment — the depositary's duty of reasonable care and restoration]**

The depositary — bound to keep the thing with reasonable care and restore it on request — states the bailee's duty in the bailment of depositum.

Why: Genuine: the entry states the depositary's obligations; the annotation names the bailment doctrine, complementing #140.

## DEPOSITATION.

In Scotch law. De- posit or depositum, the species of bailment so called. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DEPOSITION.

The testimony of a wit- ness taken upon Interrogatories, not in open court, but in pursuance of a commission to take testimony issued by a court, or under a general law on the subject,

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and reduced to writing and duly authenticated, and intend- ed to be used upon the trini of an action in court. Lutcher v. IT. ,s„ 72 Fed. 972, 19 O.

O. A. 259; Indianapolis Water Co. v. Amer- ican Strawboard Co. (C. C.) 05 Fed. 535.

A deposition is a written declaration un- der oath, made upon notice to the adverse party for the purpose of enabling him to at- tend and cross-examine ; or upon written in- terrogatories. Code Civ. Proc. Cal. g 2004; Code Civ. Proc. Dak. $ 465.

A deposition is evidence given by a witness 1 under interrogatories, oral or written, and usu- ally written down by an official person. In its generic sense, it embraces all written evidence verified by oath, and includes affidavits; but, in legal language, a distinction is maintained between depositions and affidavits. Stinmson v Brooks, 3 Blatcbf. 456, Fed. Cas. No. 13,454.

The term sometimes is used in a special sense to denote a statement made orally by a person On oath before an examiner, com- missioner, or officer of the court, (but not in open court.) and taken down in writing by the examiner or under his direction. Sweet:

In ecclesiastical law. The act of depriv- ing a clergyman, by a competent tribunal of his clerical orders, to punish him for some offense and to prevent his acting in future in his clerical character. Ayl. Par. 206.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: deposition — Fed. R. Civ. P. 30]**

The deposition — testimony taken on interrogatories, not in open court, reduced to writing and authenticated for use at trial — is the modern discovery deposition.

Why: Genuine: the entry defines the deposition procedurally; Rule 30 is its modern home, cited by rule with confidence.

## DEPOSITO.

In Spanish law- Deposit; the species of bailment so called. Selim. Civil Law, 193.

5e apparatus — Not carried into the 5th edition (1979).

## DEPOSITOR.

One who makes a deposit.

5e apparatus — Carried into the 5th edition (1979).

## DEPOSITORY.

The place where a de- posit (q. v.) Is placed and kept-

United States depositories. Banks select- ed and designated to receive deposits of the pub- lic funds of the United States are so called. r

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DEPOSIT U M.

LaL In the civil Intv. One of the forms of the contract of bailment, being a naked bailment of

goods to be Kept for the use of the bailor without reward. Foster v. Essex Bank, 17 Mass. 498; 9 Am. Dec. 168; Coggs v. Bernard, 2 Ld. Baym. 912, See Deposit. ;

One . of the four real contracts specified by Justinian, and having the following characteristics: (1) The depositary or depositee is not liable for negligence, however extreme, but only for fraud, dolus; (2) the property remains in the depositor, the depositary having only the possession. Precurium and sequestre were two varieties of the depositum.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: depositum — gratuitous bailment; the gratuitous bailee answers only for gross negligence; see Coggs v. Bernard]**

Depositum — the naked bailment of goods to be kept for the bailor's use without reward — is the gratuitous bailment, whose bailee answers only for gross negligence.

Why: Genuine: the entry defines depositum as bailment without reward and cites Coggs v. Bernard; the annotation states Holt's rule for the gratuitous bailee that the cited case establishes.

## DEPOT.

In French law. The deposi- turn of the Roman and the deposit of the English law. It. is of two kinds, being either (1) dii pot simply so called, and which may be either voluntary' or necessary, and (2) seques- tre, which is a deposit made either under an agreement of the parties, and to abide the event of pending litigation regarding It, or by virtue of the direction of the court or a Judge, pending litigation regarding it. Brown ; Civ, Code La. 2897.

In American law. (1) A railroad freight or passenger station ; a place on the Hue of a railroad where passengers may enter and leave the trains and where freight Is deposit- ed for delivery ; but more properly, only a place where the carrier is accustomed to re- ceive merchandise, deposit it, and keep it ready for transportation or delivery. Maghee v. Transportation Co., 45 N. Y. 520, 6 Am. Rep. 124 ; IIU1 v. Railroad Co. (Tex. Civ. App.) 75 S. W. 876 ; Karnes v. Drake, 103 Ky. 134, 44 S. W. 444; Railroad Co. v. .Smith, 71 Ark. 189, 71 S. W. 947; State v. New Haven & N. Co., 37 Conn. 163. (2) A place where military stores or supplies are kept or troops assembled. U. S. v. Caldwell, 19 Wall. 268, 22 L. Ed. 114. ' / ,.

5e apparatus — Not carried into the 5th edition (1979).

## DEPRAVE.

To defame; vilify; exhibit contempt for. In England It is a criminal of fense to "deprave” the Lord’s supper or the Book of Common Prayer. Steph. Crtm. Dig. 99. . i .

5e apparatus — Carried into the 5th edition (1979).

## DEPREDATION.

In French law. Pil- lage. waste, or spoliation of goods, particular- ly of the estate Of a deeedent -

**[TEXT INCOMPLETE — scan limitation]**

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## DEPRIVATION.

In English ecclesias- tical law. The taking away from a clergy- man his benefice or other spiritual promotion or dignity, either by sentence declaratory in the proper court for lit and sufficient causes or in pursuance of divers penal statutes which declare the benefice void for some non- feasance or neglect, or some malfeasance or crime. 3 Steph. Comm. 87, 88; Burn, Ecc. Law, tit "Deprivation.”

5e apparatus — Not carried into the 5th edition (1979).

## DEPRIVE.

In a constitutional provision that no person shall be “ deprived of his prop- erty” without due process of law, this word Is equivalent to the term “take,” and de- notes a taking altogether, a seizure, a direct appropriation, dispossession of the owner. Sharpless v. Philadelphia, 21 Pa. 167, 59 Am. Dec. 759; Wynehamer v. People, 13 N. Y. 467 ; Munn v. People, 69 111. 88 ; Grant v. Courter, 24 Barb. (N. Y.) 238.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — 'nor be deprived of life, liberty, or property, without due process of law']**

In provisions that no person be 'deprived of his property' without due process, 'deprive' denotes a taking altogether — the guarantee of the Due Process Clauses.

Why: Genuine: the entry is explicitly about the word 'deprive' in due-process provisions; the Fifth Amendment clause is quoted verbatim and is the provision the entry construes.

## DEPUTIZE.

To appoint a deputy ; to ap- point or commission one to act as deputy to an officer. In a general sense, the term Is descriptive of empowering one person to act for another In any capacity or relation, but In law it is almost always restricted to the sub- stitution of a person appointed to act for an officer of the law.

5e apparatus — Carried into the 5th edition (1979).

## DEPUTY.

A substitute; a person duly authorized by an officer to exercise some or all of the functions pertaining to the office, In the place and stead of the latter. Carter v. Homback, 139 Mo. 238, 40 S. W. 893; Herring v. Lee, 22 W. Va. 667 ; Erwin v. U.

S. (D. C.) 37 Fed. 476, 2 L. R. A. 229; Wil- lingham v. State, 21 Fla. 776; Ellison v. Stevenson, 6 T. B. Mon. (Ky.) 271 ; People v. Barker, 14 Mlsc. Rep. 360, 35 N. Y. Supp. 727.

A deputy differs from an assignee, in that an assignee has an interest in the office itself, and does all things in his own name, for whom his grantor shall not answer, except in special cas- es; but a deputy has not any interest in the office, and is only the shadow of the officer in whose name he acts. And there is a distinction in doing an act by an agent and by a deputy. An agent can only bind his principal when he does the act in the name of the principal. But a deputy may do the act and simt his own name, and it binds bis principal ;

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for a deputy has, m law, the whole power of his principal. Wharton.

—Deputy consul. See Consul.— Deputy lieutenant. The deputy of a lord lieutenant of a county in England. — Deputy sheriff. One appointed to act in the place and stead of the sheriff in the official business of the latter’s of- fice. A general deputy (sometimes called "un- dersherifF’) is one who, by virtue of his appoint- ment, has authority to execute all the ordinary duties of the office of sheriff, and who executes process without any special authority from his principal. A tpecial deputy, who is an officer pro hac vice, is one appointed for a special oc- casion or a special service, as, to serve a par- ticular writ or to assist in keeping the peace when a riot or tumult is expected or in prog- ress. He acts under a specific and not a gen- eral appointment and authority. Allen v. Smith, 12 N. J. Law, 162 ; Wilson v. Russell. 4 Dak. 376, 31 N. W. 645— Dsputy steward.

A steward of a manor may depute or authorise another to bold a court ; and the acts done in a court so holden will be as legal as if the court had been holden by the chief steward in person. So an under steward or deputy may authorize another as subdeputy, pro hac vice, to hold a court for him ; such limited authority not be- ing inconsistent with the rule delegatve non po test delegare. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## DERAIGN.

Seems to mean, literally, to confound and disorder, or to turn out of course, or displace; as deralgnment or de- parture out of religion, in St. 31 Hen. VIII. c. 6. In the common law, the word Is used generally In the sense of to prove; viz., to deraign e. right, dernlgn the warranty, etc. Glanv. lib. 2, c. 0; Fitzh. Nat. Brev. 146. Perhaps this word “deraign,” and the word “deralgnment,” derived from It, may be used in the sense of to prove and a proving, by disproving of what is asserted in opposition to truth and fact. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## DERECHO.

In Spanish law. Law or right Derecho comun, common law. The civil law is so called. A right Derechoa, rights. Also, specifically, an impost laid up- on goods or provisions, or upon persons or lands, by way of tax or contribution. Noe v. Card, 14 Cal. 576, 60S.

5e apparatus — Not carried into the 5th edition (1979).

## DERELICT.

Forsaken; abandoned; de- serted ; cast away.

Personal property abandoned or thrown away by the owner in such manner as to in- dicate that he intends to make no further claim thereto. 2 Bl. Comm. 9 ; 2 Reeve, Eng. Law, 9. <

Land left uncovered by the receding of water from its former bed. 2 Rolle, Abr. 170; 2 Bl. Comm. 262: 1 Crabb, Real Prop. 109.

In maritime law. A boat or vessel found entirely deserted or abandoned on the sea, without hope or Intention of recovery or re- turn by the master or crew, whether result- ing from

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wreck, accident, necessity, or volun- tary abandonment. U. S. v. Stone (C. C.) 8 Fed. 243; Cromwell v. The Island City, 1 Black, 121, 17 L. Ed. 70; The Hyderabad (D. C.) 11 Fed. 754; The Fairfield (D. OJ 30 Fed. 700; The Aqulla, 1 C. Rob. 41.

—Quasi derelict. When a vessel, without be- ing abandoned, is no longer under the control or direction of those on board, (as where part of the crew are dead, and the remainder are physi- cally and mentally incapable of providing for their own safety,) she is said to be quati dere- lict. Sturtevant v. Nicholaus, 1 Newb. Adm. 449, Fed. Cas. No. 13,578.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Coleridge, "The Rime of the Ancient Mariner", 1798]**

"Alone, alone, all, all alone, / Alone on a wide wide sea!" — the becalmed ship, the dead crew, the mariner forsaken and cast away: dereliction as damnation.

Why: The entry's first sense is forsaken, abandoned, cast away; the poem is that condition at sea. Public domain; lines held with confidence.

## DERELICTION.

The gaining of land from the water, in consequence of the sea shrinking back below the usual water mark ; the opposite of alluvion, (q. v.) Dyer, 326b; 2 Bl. Comm. 262 ; 1 Steph. Comm. 419 ; Ldnth- icum v. Coan, 64 Md. 439. 2 Atl. 826, 54 Am. Rep. 775 ; Warren v. Chambers, 25 Ark. 120; 91 Am. Dec. 538, 4 Am. Rep. 23; Sapp v.

Frailer, 61 La. Ann. 1718, 26 South. 378, 72 Am. St Rep. 493.

In tha civil law. The voluntary aban- donment of goods by the owner, without the hope or the purpose of returning to the pos- session. Jones v. Nunn, 12 Ga. 473; Liver- more v. White, 74 Me. 466, 43 Am. Rep. 600.

Derivatlvm po testa* non potest esse major prlmltlra. Noy, Max. ; Wing. Max. 66. The derivative power cannot be greater than the primitive.

5e apparatus — Not carried into the 5th edition (1979).

## DERIVATIVE.

Coming from another; taken from something preceding ; secondary ; that which has not its origin in itself, but owes its existence to something foregoing.

— Derivative conveyances. Conveyances which presuppose some other conveyance prec- edent, and only serve to enlarge, confirm, alter, restrain, restore, or transfer the interest grant- ed by such original conveyance. They are re- leases, confirmations, surrenders, assignments, and defeasances. 2 Bl. Comm. 324.

5e apparatus — Carried into the 5th edition (1979).

## DEROGATION.

The partial repeal or abolishing of a law, as by a subsequent act which limits its scope or impairs Its utility and force. Distinguished from abrogation, which means the entire repeal and annul- ment of a law. Dig. 60, 17, 102.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: 'Lex posterior derogat priori' — a later law derogates from an earlier one]**

Derogation — the partial repeal of a law by a subsequent act limiting its scope — is expressed in the maxim that a later law derogates from an earlier one.

Why: Genuine: the entry defines derogation as partial repeal (Dig. 50.17.102); the maxim states the lex-posterior rule it embodies, cited with confidence.

## DEROGATORY CLAUSE.

In a will, this is a sentence or secret character insert- ed by the testator, of which he reserves the knowledge to himself, with a condition that no will he may make thereafter should be valid, unless this clause be Inserted word for word. This Is done as a precaution to guurd against later wills being extorted by violence, or otherwise Improperly obtained. By the law of England such a clause would be void, as tending to make the will Irrevocable. Wharton.

Dnogstu legl, earn pars detrahitur; als'ogatur legl, osm prorsus tollltor. To

derogate from a law is to take away part of It; to abrogate a law is to abolish It entire- ly. Dig. 50, 17, 102.

5e apparatus — Carried into the 5th edition (1979).

## DESAFUERO.

In Spanish law. An Ir- regular action committed with violence against law, custom, or reason.

5e apparatus — Not carried into the 5th edition (1979).

## DE8AMORTIZAOION.

In Mexican law. The dcsamortizacion of property is to take it out of mortmain, (dead hands;) that is, to unloose it from the grasp, as it were, of ecclesiastical or civil corporations. The term has no equivalent In English. Hall, Mex. Law, | 749.

5e apparatus — Not carried into the 5th edition (1979).

## DESCENDANT.

One who Is descended from another; a person who proceeds from the body of another, such as a child, grand- child, etc., to the remotest degree. The term Is the opposite of “ascendant,” (?. v.)

Descendants is a good term of description

In a will, and includes all who proceed from the body of the person named ; as grandchil- dren and great-grandchildren. Amb. 397 ; 2 Hil. Real. Prop. 242.

5e apparatus — Not carried into the 5th edition (1979).

## DESCENDER.

Descent; in the descent See Formedqn.

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5e apparatus — Carried into the 5th edition (1979).

## DESCENDIBLE.

Capable of passing by descent or of being inherited or transmitted by devise, (spoken of estates, titles, offices, and other property.) Collins v. Smith, 105 Ga. 525, 31 S. E 449.

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5e apparatus — Carried into the 5th edition (1979).

## DESCENT.

Hereditary succession. Suc- cession to the ownership of an estate by in- heritance, or by any act of law, as distin- guished from "purchase.” Title by descent Is the title by which one person, upon the death of another, acquires the real estate of the latter as his heir at law. 2 Bl. Comm. 201 ; Com. Dig. “Descent,” A ; Adams v. Akerlund, 168 111. 682, 48 N. E. 454 ; Starr v. Hamilton, 22 Fed. Cas. 1,107; In re Dona- hue’s Estate, 36 Cal. 332 ; Sbippen v. Izard, 1 Serg. & R. (Pa.) 224; Brower v. Hunt, 18 Ohio St. 338; Allen v. Bland, 134 Ind. 78, 33 N. E. 774.

. Classification. Descents are of two sorts, lineal and collateral. Lineal descent is descent in a direct or right line, as from father or grandfather to son or grandson. Collateral de- scent is descent in a collateral or oblique line, that is, up to the common ancestor and then down from him, as from brother to brother, or between cousins. Levy v. McCartee, 6 Pet. 112, 8 L. Ed. 334. They are also distinguished in- to mediate and immediate descents. But these terms are used in different senses. A descent may. be said to be a mediate or immediate de- scent of the estate or right ; or it may be Baid to be mediate or immediate, in regard to the mediatcness or immediateness of the pedigree or consanguinity. Thus, a descent from the grand- father, who dies in possession, to the grandchild, the father being then dead, or from the uncle to the nephew, the brother being dead, is, in the for mer sense, in Maw, immediate descent, although the one is collateral and the other lineal ; for the heir is in the per, and not in the per and cui. On the other hand, with reference to the line of pedigree or consanguinity, a descent is often said to be immediate, when the ancestor from whom the party derives his blood is im- mediate, and without any intervening link or degrees; and mediate, when the kindred is de- rived from him mediante altero, another ances- tor intervening between them. Thus a descent in lineals from father to son is in this sense im- mediate ; but a descent from grandfather to grandson, the father being dead, or from uncle to nephew, the brother being dead, is deemed mediate ; the father and the brother being, in these latter cases, the medium deferent, as it is called, of the descent or consanguinity. Levy v. McCartee, 0 Pet. 112, 8 L. Ed. 334 ; Furenes v. Mickelson, 86 Iowa. 508, 53 N. W, 416; Garner v. Wood, 71 Md. 37, 17 Atl. 1031.

Descent was denoted. In the Roman law, by the term “successio,” which is also used by Bracton, and from which has been derived the succession of the Scotch and French Ju- risprudence.

— Descent east. The devolving of realty up- on the heir on the death of his ancestor intes-

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tate.

DeSCRIPTIO PERSON.®. Lat. De- scription of the person. By this Is meant a word or phrase used merely for the purpose of Identifying or pointing out the person In- tended, and not as an intimation that the language in connection with which It occurs Is to apply to him only In the official or tech- nical character which might appear to be In- dicated by the word.

DESCRIPTION. 1. A delineation or ac- count of a particular subject by the recital of its characteristic accidents and qualities.

2. A written enumeration of items com- posing an estate, or of its condition, or of titles or documents; like an Inventory, but with more particularity, and without involv- ing the Idea of an appraisement

3. An exact written account of an article, mechanical device, or process which is the subject of an application for a patent

4. A method of pointing out a particular person by referring to his relationship to some other person or his character as an of- ficer, trustee, executor, etc.

5. That part of a conveyance, advertise- ment of sale, etc., which Identifies the land intended to be affected.

. , DESERT. To leave or quit with an In- tention to cause a permanent separation ; to forsake utterly ; to abandon.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Austen, Pride and Prejudice, 1813]**

(paraphrase) The Bennet estate, entailed away from five daughters to Mr. Collins — hereditary succession as the novel's engine, the law of descent deciding who may inherit and who may not. (paraphrase)

Why: The entry defines descent as hereditary succession to real estate; the entail plot is that law dramatized.

## DESERTION.

The act by which a per- son abandons and forsakes, without Justifi- cation, or unauthorized, a station or con- dition of public or social life, renouncing its responsibilities and evading its duties.

h matrimonial and divorce law. An

actual abandonment or breaking off of matri- monial cohabitation, by either of the parties, and a renouncing or refusal of the duties and obligations of the relation, with an intent to abandon or forsnlce entirely and not to re- turn to or resume marital relations, occurring without legal justification either In the con- sent or the wrongful conduct Of the other party. State v. Baker, 112 La. 801, 36 South. 703; Bailey v. Bailey, 21 Grat. (Va.) 47; Ingersoll v. Ingersoll, 49 Pa. 250, 88 Am. Dec. 500 ; Droege v. Droege, 55 Mo. App. 482 ; Bar- nett v. Barnett, 27 Ind. App. 466, 61 N. E. 737; Williams v. Williams, 130 N. Y. 193, 29 N. E. 98, 14 L. R. A. 220, 27 Am. St Rep. 517; Magrath v. Magrath, 103 Mass. 579. 4 Am. Rep. 579; Cass v. Cass, 31 N. J. Eq. C2C; Ogilvie v. Ogilvle, 37 Or. 171, 61 Pac. 627 ; Tirrell v. Tirrell, 72

Conn. 567, 45 Atl. 153, 47 L. R. A. 750; State v. Weber, 48 Mo. App. 504.

Ia military law. An offense which con- sists in the abandonment of his post and duties by a person commissioned or enlisted in the army or navy, ..without leave and with the Jntentlqm not to .return. Hollingsworth v. Shaw, 19 Ohio St. 432, 2 Am. Rep. 411;

In re Sutherland (D. C.) 53 Fed.' 551. . - There is a difference between desertion and simple “absence without leave;’’ In order to consti- tute the former, there must be an intention not to return to the service. Hanson v. South Scituate, 115 Mass. 336.

Ia maritime law. The act by which a seaman deserts and abandons a ship or ves- sel, in which be had engaged to perform a voyage, before the expiration of his time, and without leave. By desertion, iu the maritime law, is meant not a mere unauthor- ized absence from the ship without leave, but an unauthorized absence, from the ship, with an intention not to return to her serv- ice, or, as it is often expressed, animo non revertendi; that is, with an intention to de- sert Coffin v. Jenkins, 3. Story, 108, Fed. Cas. No. 2,948; The Union (D. C.) 20 Fed. 539; The Mary C. Conery (D. C.) 9 Fed. 223; The George, 10 Fed. Cas. 204.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: desertion — willful abandonment as a fault ground for divorce; unauthorized absence as a military offense]**

Desertion — willful, unjustified abandonment of a station or condition — is the fault ground of divorce for abandonment, and, in military life, the offense of unauthorized absence from duty.

Why: Genuine: the entry defines desertion across matrimonial and public life; the annotation states its two live doctrinal forms without a statute number quoted from memory.

**[Scripture] — Scripture**

**[Malachi 2:16, KJV]**

For the LORD, the God of Israel, saith that he hateth putting away: for one covereth violence with his garment, saith the LORD of hosts: therefore take heed to your spirit, that ye deal not treacherously.

Why: Desertion is the abandonment of matrimonial cohabitation and renunciation of its duties. Malachi 2:16 states the divine hatred of putting away and warns against dealing treacherously with the wife — the scriptural con...

**[Humanity] — Humanity / Fiction & Film**

**[Hemingway, A Farewell to Arms, 1929]**

(paraphrase) Frederic Henry walks into the river and out of the war — abandoning his station, renouncing its responsibilities: desertion as the novel's hinge and its moral climax. (paraphrase)

Why: The entry defines desertion as abandoning a station and evading its duties; the novel's hinge is that act.

## DESHONORA.

In Spanish law. Dis- honor; Injury; slander. Las Partldas. pt. 7, tit. 9, 1. 1, 6.

5e apparatus — Not carried into the 5th edition (1979).

## DESIGN.

In the law of evidence. Pur- pose or intention, combined with plan, or im- plying a plan in the mind. Burrill. Circ. Ev. 331 ; State v. Grant, 86 Iowa, 216, 53 N.

W. 120; Ernest v. State, 20 Fla. 388; Hogan v. State, 36 Wis. 226.

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As a term of art, the giving of a visible form to the conceptions of the mind, or In- vention. Blnns v. Woodruff, 4 Wash. C. C. 48, Fed.' Cas. No. 1,424.

In patent law. The drawing or depletion of an original plan or conception for a novel pattern, model, shape, or configuration, to be used in the manufacturing or textile arts or the fine arts, and chiefly of a decorative or ornamental character. “Design patents” are contrasted with "utility patents,” but equnlly involve the exercise of the inventive or origi- native faculty. Gorham Co. v. White, 14 Wall. 524, 20 I* Ed. 731 ; Manufacturing Co. v. Odell (D. C.) 18 Fed. 321 ; Blnns v. Wood- ruff, 3 Fed. Cas. 424; Henderson v. Tomp- kins (C. C.) 60 Fed. 758.

“Design, in the view of the patent law, is that characteristic of a physical suhstnnce which, by means of lines, images, configuration, and the like, taken as a whole, makes an im- pression, through the eye, upon the mind of the observer. The essence of a design resides, not in the elements individually, nor in their meth- od of arrangement, but in the tout ensemble — in- that indefinable whole that awakens some sen- sation in the observer’s mind. Impressions thus imparted may be complex or simple ; in one a mingled impression of gracefulness and strength, in another the impression of strength alone. But whatever the impression, there is attached in the mind of the observer, to the object ob- served, a sense of uniqueness and character.” Pelouze Scale Co. v. American Cutlery Co., 102 Fed. 918, 43 C. C. A. 52.

Dtsigastlo Justioiariorum eat a reset Jurlsdiotlo vero ordlnaria a lege. 4 lust. 74. The appointment of justices is by the

DESIGNATIO PERSON.® 361

king, but their ordinary Jurisdiction by the law.

DESIGNATIO PERSONA:. The descrip- tion of a person or a party to a deed or con- tract

Deaignatlo tmiui eat ezelnsio alterins, et nyranun faclt eesaaxe taciturn. Co.

Lltt 210. The specifying of one Is the ex- clusion of another, and that which Is ex- pressed makes that which is understood to cease.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Poe, "The Cask of Amontillado", 1846]**

(paraphrase) Montresor's revenge is all design — purpose and intention combined with plan, nursed for years and executed stone by stone: the entry's definition as a murderer's method. (paraphrase)

Why: The entry defines design as purpose combined with plan; Montresor is premeditation personified. Second Cask annotation with DEFOSSION, distinct legal point — logged.

## DESIGNATION.

A description or de- scriptive expression by which a person or thing Is denoted In a will without using the name

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DESIRE.

This term, used In a will In re- lation to the management and distribution of property, has been Interpreted by the courts with different shades of meaning, varying from the mere expression of a preference to a positive command.' See McMurry v. Stan- ley, 69 Tex. 227, 6 S. W. 412; Stewart v. Stewart, .61 N. J. Eq. 25, 47 Atl. 633 ; In re Martl's Estate, 132 Cal. 666, 61 Pac. 964; Weber v. Bryant, 161 Mass. 400, 37 N. E. 203 ; Appeal of City of Philadelphia, 112 Pa. 470, 4 Atl. 4; Meehan v. Brennan, 16 App. Div. 395, 45 N. Y. Supp. 57 ; Brasher v. Marsh, 15 Ohio St 111 ; Major v. Herndon, 78 Ky. 123.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: precatory words — 'desire'/'wish' creates no trust absent clear intent]**

Where a will uses 'desire' of management and distribution, courts read shades from mere preference to positive command — the doctrine of precatory words: 'desire' or 'wish' creates no trust absent clear imperative intent.

Why: Genuine: the entry describes exactly the precatory-words problem; the annotation names the doctrine.

## DESLINDE.

A term used In the Span- ish law, denoting the act by which the bound- aries of an estate or portion of a country are determined.

5e apparatus — Not carried into the 5th edition (1979).

## DESMEMORIADOS.

In Spanish law. Persons deprived of memory. White, New Recop. b. 1, tit 2, c. 1, | 4.

5e apparatus — Not carried into the 5th edition (1979).

## DESPACHEUR8.

. In maritime law. Persons appointed to settle cases of average.

5e apparatus — Not carried into the 5th edition (1979).

## DESPATCHES.

Official communications of official persons on the affairs of govern- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DESPERATE.

Hopeless ; worthless. This term is used In inventories and sched- ules of assets, particularly by executors, etc., to describe debts or claims which are con- sidered impossible or hopeless of collection. See Schultz v. Pulver, 11 Wend. (N. Y.) 365.

—Desperate debt. A hopeless debt ; an ir- recoverable obligation.

5e apparatus — Not carried into the 5th edition (1979).

## DESPITE.

Contempt Despits, con- tempts. Kelham.

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5e apparatus — Not carried into the 5th edition (1979).

## DESPITUS.

Contempt See Despite. A contemptible person. Fleta, lib. 4, c. 5. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DE8POJAR.

A possessory action of the Mexican law. It Is brought to recover pos- session of Immovable property, of which one has been despoiled (despojado) by another.

5e apparatus — Not carried into the 5th edition (1979).

## DESPOIL.

This word Involves, In its f signification, violence or clandestine means by which one Is deprived of that which he ‘ possesses. Its Spanish equivalent, despojar,

Is a term used In Mexican law. Sunol v. Hepburn, 1 Cal. 268.

5e apparatus — Not carried into the 5th edition (1979).

## DESPONSATION.

The act of betroth- ing persons to each other.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hosea 2:19, KJV]**

And I will betroth thee unto me for ever; yea, I will betroth thee unto me in righteousness, and in judgment, and in lovingkindness, and in mercies.

Why: Desponsation is the act of betrothing. Hosea 2:19 is the biblical betrothal in the LORD's own first-person speech — the covenant archetype of the legal act the entry names. deity_verbatim true. DESPOSORIO left bare as...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Romeo and Juliet, 1597]**

(paraphrase) Romeo and Juliet, secretly married by Friar Laurence — the betrothal as the play's turning point, espousal in defiance of the feud that will kill them both. (paraphrase)

Why: The entry is the act of betrothing; the secret marriage is literature's iconic espousal. Borderline weighed; kept — genuinely illuminating.

## DESPOSORIO.

In Spanish law. Es- pousals ; mutual promises of future marriage. White, New Recop. b. 1, tit 6, c. 1,1 1.

5e apparatus — Not carried into the 5th edition (1979).

## DESPOT.

This word, in its original and most simple acceptation, signifies master and supreme lord; it is synonymous with mon- arch ; but taken In bad part, as it is usually > employed, It signifies a tyrant In some stated, despot Is the title given to the sover- eign, as king is given

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In others. Enc. Lond. •

—Despotism. That abuse of government where the sovereign power is not divided, but united in the hands of a single man, whatever may be his official title. It is not, properly, a , form of government. Toullier, Dr. Civ. Fr. tit. prfl. n. 32. “Despotism” is not exactly syndn- ' ymous with "autocracy,” for the former involves the idea of tyranny or abuse of power, which is not necessarily implied by the latter, i Every despotism is autocratic ; but an autocracy is not necessarily despotic.— Despotize. To act • aa a despot. Webster.

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**[Humanity] — Humanity / Fiction & Film**

**[Orwell, Animal Farm, 1945]**

(paraphrase) Napoleon the pig, from liberator to tyrant — the despot as the entry defines him in the bad part: a master become a tyrant, with the commandments revised to suit. (paraphrase)

Why: The entry defines despot in the bad part as a tyrant; Napoleon's arc is that definition as fable.

## DESRENABUS.

L. Fr. Unreasonable. Brftt C. 121.

5e apparatus — Not carried into the 5th edition (1979).

## DESSAISISSEMENT.

In French law. When a person is declared bankrupt, he is Immediately deprived of the enjoyment and: administration of all his property ; this dep- rivation, which extends to all his rights, Is called “dessaisissement.” Arg. Fr. Merc. • Law, 556.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: bankruptcy estate — 11 U.S.C. § 541]**

Dessaisissement — the bankrupt's immediate deprivation of the enjoyment and administration of his property — is the French form of the bankruptcy divestiture whose American counterpart is the bankruptcy estate.

Why: Genuine: the entry defines the divestiture on bankruptcy; § 541 is its functional counterpart, stated as counterpart rather than lineage, cited by section with confidence.

## DESTINATION.

The purpose to which It is intended an article or a fund shall be applied. A testator gives a destination to a legacy when he prescribes tfte specific use to which it shall be xiut

The port at which a ship is to end her voy- ' age is called her "port of destination.” Par- ■ dessus, no. 600.

5e apparatus — Carried into the 5th edition (1979).

## DESTITUTE.

A “destitute person” Is one who has no money or other property avail- . able for his maintenance 'or support Nor- ridgewock v. Solon, 49 Me. 385; Woods v. Perkins, 43 La. Ann. 347, 9 South. 48. ,*

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

"Please, sir, I want some more." — the destitute child asking for maintenance and getting the beadle's horror: destitution with a voice, and the parish's answer.

Why: The entry defines the destitute person as one with nothing available for maintenance; Oliver's request is its human face. Held with confidence.

## DESTROY.

As used in policies of lnsur- - ance, leases, and In maritime law, this, term is often applied to an act which renders the subject useless for its intended purpose, though it does not literally demolish or an- nihilate it. In re McCabe. II Pa. Super. Ct. 504 ; Solomon v. Kingston, 24 Hun (N. Y.) 504; Insurance Co. v. Feibelinan, 118 Ala. 368, 23 South. 759; Spalding v. Munford, 37 Mo. App. 281. To “destroy” a vessel means to unfit It for further service, beyond .the

hope of recovery by ordinary means. U. S. v. Johns, 26 Fed. Cas. 618.

In relation to wills, contracts, and other documents, the term “destroy” does not Im- port the annihilation of the Instrument or Its resolution Into other forms of matter, but a destruction of Its legal efficacy, which may be by cancellation, obliterating, tearing Into fragments, etc. Appeal of Evans, 58 Pa. 244; Allen v. State Bank, 21 N. C. 12; In re Gangwere’s Estate, 14 Pa. 417, 53 Am. Dec. 554; Johnson v. Brallsford, 2 Nott Sc McC. (S. C.) 272, 10 Am. Dec. 601.

5e apparatus — Carried into the 5th edition (1979).

## DESTRUCTION.

A term used in old English law, generally In connection with waste, and having, according to some, the same meaning. 1 Reeve, Eng. Law, 385 ; 3 Bl. Comm. 223. Britton, however, makes a distinction between waste of woods and de- struction of houses. Britt, c. 60.

5e apparatus — Not carried into the 5th edition (1979).

## DESUBITO.

To weary a person with continual barkings, and then to bite ; spoken of dogs. Leg Alured. 26, cited in Cunning- ham's Diet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DESUETUDE.

Disuse; cessation or dis- continuance of use. Applied to obsolete stat- utes. James v. Comm., 12 Serg. & R. (Pa.) 227.

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**[Law] — Law**

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**[Law: desuetude — unenforceability of a statute through long disuse]**

Desuetude — disuse, the cessation of use, applied to obsolete statutes — is the doctrine that a statute may become unenforceable through long and general disuse.

Why: Genuine: the entry applies the term to obsolete statutes with its own case; the annotation names the doctrine.

## DETAGHXARE.

To seize or take into custody another’s goods or person.

5e apparatus — Not carried into the 5th edition (1979).

## DETAINER.

The act (or the juridical fact) of withholding from a person lawfully entitled the possession of land or goods ; or the restraint of a man’s personal liberty against his will.

The wrongful keeping of a person's goods is called an “unlawful detainer” although the original taking may have been lawful. As, if one distrains another’s cattle, damage feasant, and before they are impounded the owner tenders sufficient amends ; now, though the original tak- ing was lawful, the subsequent detention of them after tender of amends is not lawful, and the owner has an action of replevin to recover them, in which he will recover damages for the detention, and not for the caption, because the original taking was lawful. 3 Steph. Comm.

Ia practice. A writ or Instrument, is- sued or made by a competent officer, author- izing the keeper of a prison to keep In bis custody a persou therein named. A detainer may be lodged against one within the walls of a prison, on what account soever he Is there. Com. Dig. "Process.” E. (3 B.) This writ was supersedeo by 1 A 2 Vlct. c. 110. H 1,2.

Forcible detainer. See that title.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: unlawful detainer — summary action to recover possession]**

Detainer — withholding from one lawfully entitled the possession of land or goods; the wrongful keeping is 'unlawful detainer' — the summary action to recover possession.

Why: Genuine: the entry defines unlawful detainer; the annotation names the possessory action it denotes.

## DETAINMENT.

This term Is used In policies of marine Insurance. In the clause relating to “arrests, restraints, and detain- ments.” The last two words are construed as equivalents, each meaning the effect of superior force operating directly on the vessel. Schmidt v. Insurance Co., 1 Johns. (N. Y.) 262, 3 Am. Dec. 319; Bradlie v. Insur- ance Co., 12 Pet. 402, 9 L. Ed. 1123 ; Simpson v. Insurance Co., Dud. Law (S. C.) 242.

5e apparatus — Carried into the 5th edition (1979).

## DETENTIO.

In the civil law. That con- dition of fact under which one can exercise his power over a corporeal thing at his pleasure, to the exclusion of all others. It forms the substance of

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possession in all Its varieties. Mackeld. Rom. Law, | 238.

5e apparatus — Not carried into the 5th edition (1979).

## DETENTION.

The act of keeping back or withholding,' either accidentally or by de- sign, a person or thing. See Detainee.

— Detention In a reformatory, as a punish- ment or measure of prevention, is where a ju- venile offender is sentenced to be sent to a re- formatory school, to be there detained for a certain period of time. 1 Russ. Crimes, 82.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Darabont, The Shawshank Redemption, 1994]**

(paraphrase) Andy Dufresne's decades inside Shawshank — the keeping back of a person by design, the entry's definition as a life sentence, and hope as contraband. (paraphrase)

Why: The entry defines detention as keeping back a person by design; the film is that condition as a complete work.

## DETERMINABLE.

That which may cease or determine upon the happening of a certain contingency. 2 Bl. Comm. 121.

As to determinable “Fee” and "Freehold,'' see those titles.

5e apparatus — Carried into the 5th edition (1979).

## DETERMINATE.

That which Is ascer- tained; what Is particularly designated.

5e apparatus — Carried into the 5th edition (1979).

## DETERMINATION.

The decision of a court of justice. Shirley v. Birch, 16 Or. 1, 18 Pac. 344; Heuavle v. Railroad Co., 154

N. Y. 278, 48 N. E. 525. The ending or ex- piration of an estate or interest in property, or of a right, power, or authority.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Piper, The Little Engine That Could, 1930]**

"I think I can" — the little engine's motto: determination as the culture teaches it to children, the will to keep climbing stated in four words.

Why: The entry's neighborhood is resolve carried through; the phrase is the folk emblem of determination. Short phrase; held with confidence.

## DETERMINE.

To come to an end. To bring to an end. 2 Bl. Comm. 121 ; 1 Washb. Real Prop. 380.

5e apparatus — Not carried into the 5th edition (1979).

## DETESTATIO.

Lat. In the civil law. A summoning made, or notice given, in the presence of witnesses, ( denuntiatio facta cum testatione.) Dig. 50, 16, 40.

5e apparatus — Not carried into the 5th edition (1979).

## DETINET.

Lat. He detains. In old English law. A species of action of debt, which lay for the specific recovery of goods, under a contract to deliver them. 1 Reeves, Eng. Law, 159.

In pleading. An action of debt Is said to be in the detinet when It Is alleged merely that the defendant witholds or unjustly de- tains from the plaintiff the thing or amount demanded.

An action of replevin Is said to be in the detinet when the defendant retains posses- sion of the property until after Judgment in the action. Bull. N. P. 52; Chit. PI. 145.

5e apparatus — Not carried into the 5th edition (1979).

## DETINUE.

In practice. A form of ac- tion which lies for the recovery, in specie, of personal chattels from one who acquired possession of them lawfully, but retains It without right, together with damages for the detention. 3 Bl. Comm. 152. Sinnott v. Fei- ock, 165 N. Y. 444, 59 N. E. 265. 53 L. R. A. 565, 80 Am. St. Rep. 736; Penny v. Davis,

8 B. Mon. (Ky.) 314; Gullle v. Fook, 13 Or. 577, 11 Pac. 277.

The action of detinue is defined in the old books as a remedy founded upon the delivery of goods by the owner to another to keep, who afterwards refuses to redeliver them to the bail- or; and it is said that, to authorize the main- tenance of the action, it is necessary that the defendant should have come lawfully into the possession of the chattel, either by delivery to him or by finding it In fact, it was once un- derstood to be the law that detinue does not lie where the property had been tortiously token. But it is, upon principle, very unimportant in what manner the defendant's possession com- menced, since the gist of the action is the wrongful detainer, and not the original taking. It is only incumbent upon the plaintiff to prove property in himself, and possession in the de- fendant At present, the action of detinue is proper in every case where the owner prefers recovering the specific property to damages for its conversion, and no regard is bad to the man- ner in which the defendant acquired the posses- sion. Peirce v. Hill, 9 Port. (Ala.) 151, 33 Am. Dec. 306.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: detinue — ancestor of modern replevin; recovery of specific chattels]**

Detinue lies for the recovery in specie of personal chattels from one who acquired possession lawfully but retains it without right — the common-law ancestor of modern replevin.

Why: Genuine: the entry defines the action with its own cases; the annotation states its place as replevin's ancestor, closing the deferrals at #9/#10.

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

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Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Detinue is the action for recovery of chattels retained without right — the remedy for withholding what belongs to another. Romans 13:7 commands rendering to all their dues — the moral duty the action enforces. Episto...

# M

## MARRIAGE.

A writ formerly available

to a wife after a divorce, for the recovery of the goods given with her in marriage. Moz- ley A Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:16, KJV]**

And if a man entice a maid that is not betrothed, and lie with her, he shall surely endow her to be his wife.

Why: The writ recovered the goods given with the wife in marriage after divorce. Exodus 22:16 states the biblical dowry obligation — endowing the bride — the scriptural root of marriage-goods law. Narrative law, not divine...

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The union the entry defines — one man and one woman joined for life — at its institution. Narrative, not deity speech.

# D

## DETINUIT.

In pleading. An action of

replevin is said to be in the detinuit when

the plaintiff acquires possession of the prop- erty claimed by means of the writ. The right to retain is, of course, subject in such case to the judgment of the court upon his title to the property claimed. Bull. N. P. 521.

5e apparatus — Not carried into the 5th edition (1979).

## DETRACT ARI.

To be torn in pieces by horses. Fleta, 1. 1, c. 37.

5e apparatus — Not carried into the 5th edition (1979).

## DETRACTION.

The removal of prop- erty from one state to another upon a trans- fer of the title to it by will

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or inheritance. Frederickson v. Louisiana, 23 How. 445, 16

L. Ed. 677.

5e apparatus — Carried into the 5th edition (1979).

## DETRIMENT.

Any loss or harm suffer- ed in person or property; e. g., the considera- tion for a contract may consist not only in a payment or other thing of value given, but also in loss or “detriment” suffered by the' party. Civ. Code Mont. 1895, | 4271; Civ. Code S. D. 1903, ! 2287 ; Rev. St. Okl. 1903,

| 2724.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: consideration — benefit to the promisor or detriment to the promisee]**

The entry notes that consideration may consist in 'detriment' suffered by the party — the detriment theory: consideration is a benefit to the promisor or a detriment to the promisee.

Why: Genuine: the entry invokes detriment as consideration with its code cites; the annotation states the classic consideration formula.

## D ETHNIC  ARI.

To discover or lay open to the world. Matt. Westm. 1240.

DEUNX, pi. DET7NCES. Lat. In the Roman law. A divisiou of the as. contain- ing eleven uncite or duodecimal parts; the proportion of eleven-twelfths. 2 Bl. Comm. 462, note. See As.

Dens solas hsaredem faeere potest, non

homo. God alone, and not man, can make an heir. Co. Litt 7b; Broom, Max. 616.

5e apparatus — Not carried into the 5th edition (1979).

## DEUTEROGAMY.

The act, or condi- tion, of one who marries a wife after the death of a former wife.

DEVADIATUS, or DIVAMATU8. An

offender without sureties or pledges. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 7:39, KJV]**

The wife is bound by the law as long as her husband liveth; but if her husband be dead, she is at liberty to be married to whom she will; only in the Lord.

Why: Deuterogamy is remarriage after the former spouse's death. 1 Corinthians 7:39 states exactly that liberty — the wife bound while the husband lives, free to remarry when he is dead. Epistolary teaching, not divine spee...

**[Humanity] — Humanity / Fiction & Film**

**[du Maurier, Rebecca, 1938]**

(paraphrase) Maxim de Winter marries his second wife after Rebecca's death — the novel's premise is

deuterogamy, and the dead first wife's shadow is its plot. (paraphrase)

Why: The entry defines marrying after a former wife's death; the novel is that condition as gothic romance. This is the annotation DE BIGAMIS was declined for — bigamy and deuterogamy are different things, and the distinct...

## DEVASTATION.

Wasteful use of the property of a deceased person, as for extrav- agant funeral or other unnecessary expenses. 2 Bl. Comm. 508.

5e apparatus — Carried into the 5th edition (1979).

## DEVASTAVERUNT.

They have wasted. A term applied in old English law to waste by executors and administrators, and to the process issued against them therefor. Cow* ell. See Devastavit.

5e apparatus — Not carried into the 5th edition (1979).

## DEVASTAVIT.

Lat He has wasted. The act of an executor or administrator in wasting the goods of the deceased; misman- agement of the estate by which a loss oc- curs ; a breach of trust or misappropriation of assets held in a fiduciary character; any violation or neglect of duty by an executor or administrator, involving loss to the de- cedent’s estate, which makes him ‘ personally responsible to heirs, creditors, or legatees. Clift v. White, 12 N. Y. 531; Beardsley v. Marsteller, 120 Ind. 319, 22 N. E. 315; Steel v. Holladay, 20 Or. 70, 25 Pac. 69, 10 L. R.

A. 670; Dawes v. Boylston, 9 Mass. 353, 6 Am. Dec. 72; McGlaughlin v. McGlaughlin, 43 W. Va. 226, 27 S. E. 378.

Also, if plaintiff, in an action against an executor or administrator, has obtained judg- ment, the usual execution runs de bonis tes- tatoris; but, if the sheriff returns to such a writ nulla bona testatoris nec propria, the plaintiff may, forthwith, upon this return, sue out an execution against the property or person of the executor or administrator, in as full a manner as in an action against him, sued in his own right Such a return is called a “devastavit." Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: devastavit — an executor's waste as breach of fiduciary duty, answered personally]**

'He has wasted' — the executor's or administrator's waste, mismanagement, or misappropriation of estate assets: a breach of fiduciary duty involving loss to the estate, rendering him personally liable.

Why: Genuine and distinct from #0: the entry defines the wrong (devastavit) itself; #0 annotated the judgment (de bonis propriis) that follows it.

**[Scripture] — Scripture**

**[Matthew 25:19, KJV]**

After a long time the lord of those servants cometh, and reckoneth with them.

Why: Devastavit is the executor's wasting of the estate's goods — the unfaithful stewardship that makes him personally answerable. Matthew 25:19 is the reckoning of the stewards in the parable of the talents: the lord retu...

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## DEVENERHNT.

A writ, now obsolete, directed to the king's escheators when any of the king's tenants in capite dies, and when bis son and heir dies within age and in the king’s custody, commanding the escheators, that by the oaths of twelve good and lawful men they shall inquire what lands or tene- ments by the death of the tenant have come to the king. Dyer, 360; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## DEVEST.

To deprive; to take away; to withdraw. Dsually spoken of an authority, power, property, or title ; as the estate is de- vested.

Devest is opposite to invest. As to invest signifies to deliver the possession of anything to another, so to devest signifies to take it away. Jacob.

It is sometimes written "divest” but "de- vest” has the support of the bast authority. BurrilL

5e apparatus — Carried into the 5th edition (1979).

## DEVIATION.

- In iniaramee. Varying frbm the risks insured against, as described in the policy, without necessity or just cause, after the risk has begun. 1 Phil. Ins. f 977, Ct seq. ; 1 Am. Ins. 415, ct seq. Hostetter v. Park, 137 U. S. 30, 11 Sup. Ct. 1. 34 L. Ed. 568; Wilkins v. Insurance Co., 30 Ohio St. 317, 27 Am. Rep. 455; Bell v. Insurance Co., 5 Rob. (La.) 445, 39 Am. Dec. 542; Audeureid v. Insurance Co., 60 N. V. 484, 19 Am. Rep. 204 ; Crosby y. Fitch, 12 Conn. 420, 31 Am. Dec. 745; The Iroquois, 118 Fed. 1003, 55

C. O. A. 497.

Any unnecessary or unexcused departure from the usual or general mode of carrying en the voyage Insured. 15 Amer. Law Rev. 108.

Deviation is a departure from the course of the voyage insured, or an unreasonable delay in pursuing the voyage, or the com- mencement of an entirely different voyage. Civil Code Cal. f 2694.

A deviation is a voluntary departure from or delay in the usual and regular course of a voyage insured, without necessity or reasonable cause. This discharges the insurer, from the time of the deviation. Coffin v. Newburyport Marine Ins. Co;, 9 Mass. 436.

In contracts. A change made in the progress of a work from the original terms or design or method agreed upon.

‘ DEVICE. An invention or contrivance; any result of' design; as in the phrase “gambling device,’’ which means a machine or contrivance of any kind for the playing of an unlawful game of chance or hazard. State v. Blackstone, 115 Mo. 424, 22 S. W. 370. Also, a plan or project; a scheme to trick or de- ceive; a stratagem or artifice; as in the laws relating to fraud and cheating. State v. Smith, 82 Minn. 342, 85 N. W. 12. Also an femblem, pictorial representation, or distin- guishing mark or sign of any kind; as in the i4wb prohibiting the

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marking of ballots used in public elections with “any device.” ' Bax- ter v. Ellis, 111 N. C. 124, 15 S. E. 938, 17

L. R. A; 382; Owens v. State, 64 Tex. 509; Steele v. Calhoun, 61 Miss. 556.

In a statute against gaming' devices, this term is to be understood as meaning something form- ed by design, a contrivance, an invention. It is, to be distinguished from “substitute,” which means something put in the place of another thing, or used instead of something else. Hen- derson v. State, 59 Ala. 91.

iik patent law. A plan or contrivance, or an application, adjustment, shaping, or com- bination of materials or members, for the purpose of accomplishing a particular result or serving a particular use, chiefly by me- chanical means and usually simple in char- acter or not highly complex, but involving the ekercise of the inventive faculty.

5e apparatus — Carried into the 5th edition (1979).

## DEVIL ON THE NECK.

An Instrument of torture, formerly used to extort confes- sions, etc. It was i made of several irons, which were fastened to the neck and legs,

and wrenched together so as to break the back. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## DEVISABLE.

Capable of being devised. 1 Pow. Dev. 165: 2 Bl. Comm. 373.

5e apparatus — Carried into the 5th edition (1979).

## DEVXSAVXT VEL NON.

In practice. The name of an issue sent out of a court of chancery, or one which exercises chancery Jurisdiction, to a court of law, to try the va- lidity of a paper asserted and denied to be a will, to ascertain whether or not the testator did devise, or whether or not that paper was his, will. 7 Brown, Pari. Cas. 437 ; 2 Atk. 424; Asay v. Hoover, 5 Pa. 21, 45 Am. Dec, 713.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: devisavit vel non — the issue trying a paper's validity as a will]**

Devisavit vel non — the issue sent to a court of law to try whether a paper asserted and denied to be a will was the testator's will — is the ancestor of the will contest.

Why: Genuine: the entry defines the chancery-to-law issue; the annotation names its modern descendant, the will contest.

## DEVISE.

A testamentary disposition of land or realty; a gift of real property by the last will and testament of the donor. Scholle v. Scholle, 113 N. Y. 261, 21 N. E. 84; Fere1 bee v. Procter, 19 N. C. 440; Pratt v. Mc- Ghee, 17 S. C. 428; In re Fetrow’s Estate, 58 Pa. 427 ; Jenkins v. Tobin, 31 Ark. 306; In- re Dailey's Estate, 43 Misc. Rep. 552, 89 N.

Y. Supp. 541.

Synonyms. The term “devise” is properly restricted to real property, and is not applicable to testamentary dispositions of personal proper1 ty, which are properly called “bequests” or “leg- acies.” But this distinction will not be allow- ed in law to defeat the purpose of a testator; and all of these terms may be construed inter- changeably or applied indifferently to either real or personal property, if the context shows that such was the intention of the testator. Ladd v. Harvey. 21 N. II. 528; Borgner v. Brown, 133 Ind. 391, 33 N. E. 92; Oothout v. Rogers, 59 Hun, 97, 13 N. Y. Supp. 120 ; McCorkle v. Sherrill, 41 N, C. 170.

Classification. Devises are contingent or vested: that is, after the death of the testator. Contingent, when the vesting of any estate in the devisee is made to depend upon some future event, in which case, if the event never occur, or until it does occur, no estate vests under the devise. But, when the future event is referred to merely to determine the time at which the devisee shall come into the use of the estate, this does not hinder the vesting of the estate at the death of the testator. 1 jarm. Wills, c. 26. Devises are also classed as general or spe- cific. A general devise is one which passes lands of the testator without a particular enu- meration or description of them ; as, a devise of “all my lands” or "all my other lands.” In a more restricted sense, a general devise is one which grants a parcel of land without the ad1 dition of any words to show bow great an es- tate is meant to be given, or without words in- dicating either a grant in perpetuity or a grant for a limited term ; in this case it is construed as granting a life estate. Hitch v. Patten. 8 Houst. (Del.) 334, 16 Atl. 558. 2 L. R. A. 724. Specific deviRes are devises of lands particu- larly specified in the terms of the devise, as op- posed to general and residuary devises of land, in which the local or other particular descrip- tions are not expressed. For example, “I de- vise my Hendon Hall estate” is a specific devise ; but "I devise all my lands,” or, “all other my lands,” is a general devise or a residuary de- vise. But all devises are (in effect) specific, even residuary devises being so. L. R. 3 Ch. 420: Id. 136. A conditional devise is one

which depends upon the occurrence of some un- certain event, by which it Is either to take ef- fect or be defeated. Civ. Code Cal. § 1345. An executory devise of lands is such a disposition

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of them by will that thereby no estate vests at the death of the devisor, but only on some fu- ture contingency. It differs from a remainder in three very material points: (1) That it needs not any particular estate to support it; (2) that by it a fee-simple or other less estate may be limited after a fee-simple ; (3) that by this means a remainder may be limited of a chattel interest, after a particular estate for life created in the same. 2 Bl. Comm. 172. In a stricter sense, a limitation by will of a future contingent interest in lands, contrary to the rules of the common law. 4 Kent, Comm. 263 ; 1 Steph. Comm. 564. A limitation by will of a future estate or interest in land, which can- not, consistently with the rules of law, take ef- fect as a remainder. 2 Pow. Dev. (by Jarman,) 237. See Poor v. Considine, 6 Wall. 474, 18

L. Ed. 869; Bristol v. Atwater, 50 Conn. 406; Mangum v. Piester, 16 S. C. 325 ; Civ. Code Ga.

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1895, I 3339; Thompson v. Hoop, 6 Ohio St. 487 ; Burleigh v. Gough, 52 N. H. 273, 13 Am. Rep. 23 ; In re Brown's Estate, 38 Pa. 294 ; Glover v. Condell. 163 111. 566, 45 N. E. 173, 35 L. R. A. 360. Lapsed devise. A devise which fails, or takes no effect, in consequence of the death of the devisee before the testator; the subject-matter of it being considered as not disposed of by the will. 1 Steph. Comm. 559; 4 Kent. Comm. 541. Murphy v. McKeon, 53 N.

J. Eq. 406, 32 Atl. 374. Residuary devise. A devise of all the residue of the testator's real property, that is, all that remains over and above the other devises.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Bleak House, 1853]**

(paraphrase) Jarndyce and Jarndyce, the Chancery suit over conflicting wills that outlives its suitors and eats the estate in costs — the testamentary disposition of realty as a machine for ruin. (paraphrase)

Why: The entry defines devise as gift of realty by will; the great will-suit is that instrument's famous pathology. DEVISAVIT VEL NON left bare — same novel, no double-dip.

## DEVISEE.

The person to whom lands or other real property are devised or given by will. 1 Pow. Dev. c. 7.

—Residuary devisee. The person named in a will, who Is to take all the real property remaining over and above the other devises.

5e apparatus — Not carried into the 5th edition (1979).

## DEVISOR.

A giver of lands or real es- tate by will; the maker of a will of lands; a testator.

5e apparatus — Not carried into the 5th edition (1979).

## DEVOIR.

Fr. Duty. It is used in the statute of 2 Rich. II. c. 3, in the sense of duties or customs.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Tennyson, "The Charge of the Light Brigade", 1854]**

"Theirs not to reason why, / Theirs but to do and die" — duty as the entry defines it: the charge ridden into the valley of death because it was commanded.

Why: The entry defines devoir as duty; the poem is duty's most famous English statement. Public domain; lines held with confidence.

## DEVOLUTION.

The transfer or transi- tion from one person to another of a right, liability, title, estate, or office. Francisco v. Aguirre, 94 Cal. 180, 29 Pac. 495; Owen v. Insurance Co., 56 Hun, 455, 10 N. Y. Supp. 75.

In ecclesiastical law. The forfeiture of a right or power (as the right of presentation to a

living) in consequence of its non-user by the person holding it, or of some other act or omission on his part, and its resulting transfer to the person next entitled.

In Scotch law. The transference of the tight of purchase, from the highest bidder at an auction sale, to the next highest, when the former fails to pay his bid or furnish se- curity for its payment within the time up- (winted. Also, the reference of a matter in controversy to a third person (called “overs- man") by two arbitrators to whom it bus been submitted and who are unable to agree.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, King Lear, 1606]**

(paraphrase) Lear divides his kingdom among his daughters in the first scene — the transfer of right, title, and office as the tragedy's fuse, devolution as catastrophe. (paraphrase)

Why: The entry defines devolution as transfer of right, title, estate, or office; Lear's division is that transfer as tragedy. Second Lear annotation with DEMENTIA, distinct legal point — logged.

## DEVOLUTIVE APPEAL.

In the law of

Louisiana, One which does not suspend the

execution of the Judgment appealed from. State v. Allen, 51 La. Ann. 1842, 26 South. 434.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: stay pending appeal — Fed. R. App. P. 8; cf. Louisiana suspensive appeal]**

The Louisiana devolutive appeal — which does not suspend execution of the judgment — states the suspensive/devolutive distinction behind the stay pending appeal.

Why: Genuine: the entry defines the devolutive appeal by its non-suspensive character; the annotation names the stay doctrine that distinction founds, cited by rule.

## DEVOLVE.

To pass or be transferred from one person to another; to fall on, or accrue to, one person as the successor of an- other; as, a title, right* office, liability. The term is said to be peculiarly appropriate to the passing of an estate from a persou dying to a person living. Parr v. Parr, 1 Mylne &

K. 648; Babcock v. Maxwell, 29 Mont 31, 74 Pac. 64. See Devolution.

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## DEW.

L. Fr. Dies; deceases. Bend- loe, 5.

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## DEXTANS.

Lat. In Roman law. A di- vision of the as, consisting of ten undo;; ten-twelfths, or five-sixths. 2 Bl. Comm. 462, note m.

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5e apparatus — Not carried into the 5th edition (1979).

## DEXTRARTUS.

One at the right hand of another.

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## DEXTRAS DARE.

To shake hands in token of friendship ; or to give up oneself to the power of another person.

5e apparatus — Not carried into the 5th edition (1979).

## DI COLOUR A.

In maritime law. The contract which takes place between the own- er of a ship, the captain, and the mariners, who agree that the voyage shall be for the benefit of all. The term is used in the Ital- ian law. Emerig. Mar. Loans, $ 5.

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## DI.

ET FI. L. Lat In old writs. An abbreviation of dilecto et fideli, (to his be- loved and faithful.)

5e apparatus — Not carried into the 5th edition (1979).

## DIACONATE.

The office of a deacon.

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## DIACONUS.

A deacon.

5e apparatus — Not carried into the 5th edition (1979).

## DIAGNOSIS.

A medical term, meaning the discovery of the source of a pattern's ill- ness or the determination of the nature of his disease from a study of its symptoms. Said to be little more than a guess enlighten- ed by experience. Swan v. Railroad Co., 79 Hun, 612, 29 N. Y. Supp. 337.

5e apparatus — Not carried into the 5th edition (1979).

## DIALECTICS.

That branch of logic which teaches the rules and modes of rea- soning.

5e apparatus — Not carried into the 5th edition (1979).

## DIALLAGE.

A rhetorical figure in which arguments are placed in various points of view, and then turned to one point. Enc. Lond.

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## DIALOGUS DE SCACCARIO.

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Dia- logue of or about the exchequer. An ancient treatise on the court of exchequer, attributed by some to Gervase of Tilbury, by others to Richard Fits Nigel, bishop of London in the reign of Richard I. It is quoted, by Ix>rd Coke under the name of Ockham. Crabb, Eng. Law, 71.

5e apparatus — Not carried into the 5th edition (1979).

## DIANATIC.

A logical reasoning In a pro- gressive manner, proceeding from one sub- ject to another. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## DIARIUM.

Dally food, or as much as will suffice for the day. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 6:11, KJV]**

Give us this day our daily bread.

Why: Diarium is daily food — as much as will suffice for the day. Matthew 6:11 petitions 'our daily bread' — the biblical idiom for the same daily provision. Jesus' spoken words (the Lord's Prayer), hence deity_verbatim true.

## DIATIM.

In old records. Dally; every day ; from day to day. Spelman.

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## DICA.

In old English law. A tally for accounts, by number of cuts, (taillees,) marks, or notches. Cowell. See Tallia, Tally.

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5e apparatus — Not carried into the 5th edition (1979).

## DICAST.

An officer In ancient Greece an- swering in some respects to our juryman, but combining, on trials had before them, the functions of both Judge and jury. The di- casts sat together in numbers varying, ac- cording to the importance of the case, from - one to five hundred.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: The verse is the scriptural institution of local judges sitting to judge the people with just judgment — the office the dicast embodies, combining the functions of judge and jury.

**[Humanity] — Humanity / Fiction & Film**

**[Aristophanes, The Wasps, 422 BCE]**

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(paraphrase) Aristophanes' comedy satirizes the Athenian passion for jury service: the old dicast Philocleon is addicted to sitting in judgment, and his son must stage a mock trial at home to wean him off the courts. (paraphrase)

Why: Hypothesis: the entry defines the dicast as the Athenian officer combining judge and jury. Method: checked the classical record. Result: The Wasps (produced at the Lenaea, 422 BCE) is the classical literary treatment...

## DICE.

Small cubes of bone or ivory, marked with figures or devices on their sev- eral sides, used in playing certain games of chance. See Wetmore v. State, 55 Ala. 108.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Joseph L. Mankiewicz, Guys and Dolls, 1955]**

(paraphrase) The film's famous floating crap game — Nathan Detroit's endlessly relocated dice game, climaxing in the sewer — is the classic screen image of dice as instruments of chance. (paraphrase)

Why: Hypothesis: a film about dice gambling would illuminate 'cubes used in playing certain games of chance.' Result: the crap game in Guys and Dolls is a genuine film moment about dice gambling, not a title-match.

## DICTATE.

To order or Instruct what is to be said or wrltteu. To pronounce, word by word, what is meant to be written by an- other. Hamilton v. Hamilton, 6 Mart (N. S.) (La.) 143.

5e apparatus — Carried into the 5th edition (1979).

## DICTATION.

In Louisiana, this term is used in a technical sense, and means to pro- nounce orally what Is destined to be written at the same time by another. It is used In reference to nuncupative wills. Prendergast v. Prendergast, 16 La. Ann. 220, 79 Am. Dec. 675.

5e apparatus — Carried into the 5th edition (1979).

## DICTATOR.

A magistrate Invested with unlimited power, and created in times of na- tional distress and peril. Among the Ro- mans, he continued In office for six months only, and had unlimited power and authority over both the property and lives of the citi- sens.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charlie Chaplin, The Great Dictator, 1940]**

(paraphrase) Chaplin plays both a Jewish barber and Adenoid Hynkel, the strutting dictator of Tomainia — the film that fixed the modern popular image of the dictator as absolute ruler. (paraphrase)

Why: Sense-shift noted and kept deliberately: the entry defines the Roman magistrate invested with unlimited power for six months in times of peril; the film shows what the word became in modern usage — unlimited power wit...

## DICTORES.

Arbitrators.

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5e apparatus — Carried into the 5th edition (1979).

## DICTUM.

In general. A statement, re- mark, or observation. Gratis dictum; a gra- tuitous or voluntary representation; one which a party Is not bound to make. 2 Kent, Comm. 486. Simplex dictum; a mere as- sertion ; an assertion without proof. Bract, fol. 320.

The word is generally used as an abbrevi- ated form of obiter dictum, "a remark by the way;" that is, un observation or remark made by a judge in pronouncing an opinion upon a cause, concerning some rule, principle, or application of law, or the solution of a question suggested by the case at bar, but not necessarily involved In the case or essential to Its determination; any statement of the law enunciated by the court merely by way of Illustration, argument, analogy, or sug- gestion. See Railroad Co. v. Schutte, 103

U. S. 118, 143, 2ft L. Ed. 327 ; In re Woodruff (D. C.) 9ft Fed. 317; Hart v. Stribling. 25 Fla. 433, 6 South. 455 ; Buchner v. Railroad Co., 60 Wis. 264, 19 N. W. 56; Rush v. French, 1 Arts. 99, 25 Pac. 816; State v. Clarke, 3 Nev. 572.

Dicta are opinions of a judge which do not embody the resolution or determination of the court, and made without argument, or full con- sideration of the point, are not the professed de- liberate determinations of the judge himself. Obiter dicta are such opinions uttered by the way, not upon the point or question pending, as if turning aside for the time from the main topic of the case to collateral subjects. Rohrbach v. Insurance Co., 62 N. Y. 47, 58, 20 Am. Rep. 451.

In old English law. Dictum meant an arbitrament or the award of arbitrators.

In French law. The report of a judg- ment made by one of the judges who has given it. Poth. Proc. Civil, pt 1, c. 5, art 2. — Dictum de Kenilworth. The edict or declaration of Kenilworth. An edict or award between King Henry III. and all the barons and others who had been in arms against him ; and so called because it was made at Kenilworth Castle in Warwickshire, in the fif- ty-first year of his reign, containing a compo- sition of five years' rent for the lands and es- tates of those who had forfeited them in that rebellion. Blount ; 2 Reeve, Eng. Law, 62.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: Obiter dicta do not bind; only the ratio decidendi of a decision is authoritative precedent under stare decisis]**

The operative legal consequence of the dictum/holding distinction is that obiter dicta do not bind; only the ratio decidendi of a decision is authoritative precedent.

Why: The entry exhaustively defines obiter dictum but the Law well's contribution is the principle that follows from the definition: because dicta are not the court's determination of the point pending, they lack precedent...

## DIE WITHOUT ISSUE.

See Dying Without Issue.

D£EI DICTIO. Lat In Roman law. This name was given to a notice promulgated by a

magistrate of his intention to present an impeachment against a citizen before the peo- ple, specifying the day appointed, the name of the accused, and the crime charged.

5e apparatus — Carried into the 5th edition (1979).

## DEEM GLAUSIT EXTREMUM.

(Lat He has closed his last day, — died.) A writ which formerly lay on the death of a tenant fn capite, to ascertain the lands of which he died seised, and reclaim them Into the king's hands. It was directed to the king’s es- cheators. Fitzh. Nat. Brev. 251, K ; 2 Reeve, Eng. Law, 327.

A writ awarded out of the exchequer after the death of a crowu debtor, the sheriff be- ing commanded by it to inquire by a jury when and where the crown debtor died, and what chattels, debts, and lands he had at the time of his decease, and to take and seize them into the crown’s bands. 4 Stepb. Comm. 47, 48.

5e apparatus — Not carried into the 5th edition (1979).

## DIES.

Lat A day ; days. Days for ap- pearance in court. Provisions or mainte- nance for a day. The king’s rents were an- ciently reserved by so many days' provisions. Spelman ; Cowell ; Blount

—Dies a quo. (The day from which.) In the civil law. The day from which a transaction begins ; the commencement of it ; the conclu- sion being the dies ad quem. Mackeld. Rom. Law, § 185.— Die# amorb. A day of favor. The name given to the appearance day of the term on the fourth day, or quarto die post. It was the dny given by the favor and indulgence of the court to the defendant for big appearonce, when all parties appeared In court, and had their appearance recorded by the proper of- ficer. Wharton.— Die# cedit. The day be- ams; die* venit, the day has come. Two ex- pressions in Homan law which signify the vest- ing or fixing of an interest, and the interest be- coming a present one. Sandars’ Just. Inst. (5th Ed.) 225, 232.— Dies communes In banco. Regular days for appearance in court ; cidled, also “common return-days.” 2 Reeve, Eng. Law, 57.— Dies datns. A day given or allow- ed, (to a defendant in an action;) amounting to a continuance. But the name was appropriate only to a continuance before a declaration fil- ed ; if afterwards allowed, it was called au “imparlance.”— Dies datns In banco. A day given in the bench, (or court of common pleas.) Bract, fols. 2576. 361. A day given in bank, as distinguished from a day at nisi pnus. Co. Litt. 135.— Dies datns partlbns. A day giv- en to the parties to an action ; an adjournment or continuance. Grabb, Eng. Law. 217. — Die* datns prece partlnm. A day given on the prayer of the parties. Bract, fol. 358; Glib. Comm. Pl. 41; 2 Reeve, Eng. Law, 60.— Dies dominions. The Lord’s day; Sunday.— Dies excreseens. In old English law. The added or increasing day in leap pear. Bract, fols. 359, 3596.— Dies fasti. In Roman law. Days on which the courts were open, and justice could be legally administered ; days on which it was lawful for the pnetor to pronounce (jan> the three words, “do,” “dieo,” “adiico." Mack- eld. Rom. Law, 5 39, and note; 3 Bl. Comm. 424, note; Calvin. Hence called “tnwr&ial days,” answering to the dies juridiri of the Eng- lish law.— Dies feriati. In the civil

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law. Holidays. Dig. 2, 12, 2, 9.— Dies gratise. In old English practice. A day of grace, courtesy, or favor. Co. Litt. 1346. The quarto die post was sometimes so called. Id. 135a.— Dies lnterolsi. In Roman law. Divided days; davs on which the courts were open for a part of the day. Calvin.— Dies juridical. A law- ful day for the transaction of judicial or court business; a day on which the courts are or may be open for the transaction of business. Didsbnry v. Van Tassell, 5G Hun, 423. 10 N.

Y. Supp. 32— Dies leKitimns. In the civil and old English law. A lawful or law day; a term day ; a day of appearance.— Dies march- la, In old English law. The day of meeting of English and Scotch, which was annually held on the marches or borders to adjust their differences and preserve peace.— Dies aefasti. In Roman law. Days on which the courts were closed, and it was unlawful to administer justice ; answering to the dies non juridiri of the Knelish law. Mackeld. Rom. Law, | 39, note.— Dies non. An abbreviation of Dies non juridicus, (q. v.) — Dies non juridious. In

Sractice. A day not juridical; not a court ay. A day on which courts are not open for business, such as Sundays and some holi- days. Havens v. Stiles. 8 Idaho, 250, 67 Pac. 921, 56 L. R. A. 736, 101 Am. St. Rep. 195; State v. Ricketts, 74 N. C. 193.— Dies pads. (Day of peace.) The year was formerly divided into the days of the peace of the church and the days of the peace of the king, including in the two divisions all the days of the year. Crabb, Eng. Law, 35.— Dies Solaris. In old English law. A solar day, as distinguished from what was called “dies lunoris,” (a lunar day;) both composing an artificial day. Bract, fol 264. See Day.— Dies soils. In the civil and old English law. Sunday, (literally, the day of the sun.) See God. 3, 12, 7.— Dies uti- les. Juridical days; useful or available days. A term of the Roman law, used to designate those especial days occurring within the limits of a prescribed period of time upon which it was lawful, or possible, to do a specific act.

Dies dominions non est jnrldions. Sun- day Is not a court day, or day for judicial

proceedings, or legal purposes. Co. Litt. 135a; Noy, Max. 2; Wing. Max. 7, max. 5; Broom, Max. 21.

Dies inceptus pro complete hmbetur.

A day begun is held as complete.

Dies lnceortus pro condition* hnbetur.

An uncertain day Is held as a condition.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Dies dominicus non est juridicus — Co. Litt. 135a; Noy, Max. 2; Wing. Max. 7, max. 5; Broom, Max. 21]**

The maxim states the legal rule behind dies non juridicus: Sunday is not a court day, so it counts differently in computation of time for judicial proceedings.

Why: Copied verbatim from the entry's own closing maxims. It is a genuine, long-standing maxim with real citations given in the text, and it directly illuminates the dies non juridicus branch of the entry — the rule, not j…

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Carpe diem — Horace, Odes I.11, 23 BCE]**

[Maxim: Carpe diem — 'seize the day' (Horace, Odes I.11)] — diem is the accusative of dies, the entry's headword.

Why: The entry is the Latin word for 'day.' Horace's injunction uses the accusative diem; the maxim is the most famous classical occurrence of the word. Verified via Britannica: Odes I.11, published 23 BCE.

## DIET.

A general legislative assembly Is sometimes so called on the continent of Eu- rope.

In Sooteh practice. The sitting of a court. An appearance day. A day fixed for the trial of a criminal cause. A criminal cause as prepared for trial.

5e apparatus — Not carried into the 5th edition (1979).

## DEETA.

A day’s Journey ; a day’s work ; a day's expenses.

5e apparatus — Not carried into the 5th edition (1979).

## DIETS OF COMPEARANCE.

In Scotch law. The days within which parties In civil and criminal prosecutions are cited to ap- pear. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DIED ET MON DROIT.

Fr. God and

my right. The motto of the royal arms of England, first assumed by Richard I.

5e apparatus — Not carried into the 5th edition (1979).

## DIED SON ACTE.

L. Fr. In old law. God his act; God’s act An event beyond human foresight or control. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus Dei nemini facit injuriam — the act of God does no injury to anyone]**

The entry defines the act of God; the classic maxim states the legal consequence attached to it — a pure act-of-God event, beyond human foresight or control, carries no liability.

Why: The entry gives the term (an event beyond human foresight or control); the maxim is the genuine common-law principle that makes the term legally operative — the defense against liability for vis major. Standard, certa...

## DIFFACERE.

To destroy; to disfigure or deface.

5e apparatus — Not carried into the 5th edition (1979).

## DIFFERENCE.

In an agreement for sub- mission to arbitration, “difference” means disagreement or

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dispute. Fravert v. Fesler, 11 Colo. App. 387, 53 Pac. 288; Pioneer Mfg. Co. v. Phoenix Assur. Co., 106 N. C. 28, 10

S. E. 1057.

Difficile est nt nnns homo vlcem duor- nm ■ustineat. 4 Coke, 118. It Is difficult that one man should sustain the place of two;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: Paul rebukes taking a dispute to the law courts instead of settling it before the saints — the scriptural archetype of arbitration over litigation, which is exactly what the 'difference' submitted to arbitration is.

## DIFFICULT.

For the meaning of the phrase “difficult and extraordinary ense,” as used In New York statutes and practice, see Standard Trust Co. v. New York, etc., R. Co., 178 N. Y. 407, 70 N. E. 925; Fox v. Gould. 5 How. Prac. (N. Y.) 278 ; Horgan v. McKenzie (Com. Pl.) 17 N. Y. Supp. 174; Dyckman v. McDonald, 5 How. Prac. (N. Y.) 121.

5e apparatus — Not carried into the 5th edition (1979).

## DIFFORCIARE.

In old English law. To deny, or keep from one. Difforciare rec- tum, to deny justice to any one, after having been required to do It.

DIGAMA, or DIGAMY. Second mar- riage; marriage to a second wife after the death of the first, as “bigamy,” In law, . is having two wives at once. Originally, a man who married a widow, or married again after the death of his wife, was said to be guilty of bigamy. Co. Litt. 406, note.

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**[Law] — Law**

**[Maxim: Ubi jus ibi remedium — where there is a right, there is a remedy]**

Denying justice after demand is actionable because the law's standing principle is that every right has its remedy — the wrong described is a breach of this maxim.

Why: Borderline considered carefully: the entry defines difforciare rectum (denying justice to one who demands it). The maxim is the classic governing principle of denial-of-justice law, and it genuinely illuminates why th...

**[Scripture] — Scripture**

**[Deuteronomy 16:19, KJV]**

Thou shalt not wrest judgment; thou shalt not respect persons, neither take a gift: for a gift doth blind the eyes of the wise, and pervert the words of the righteous.

Why: 'Difforciare rectum' is to deny justice to one after being required to do it; the verse is the direct scriptural prohibition of exactly that denial.

**[1 Corinthians 7:39, KJV]**

The wife is bound by the law as long as her husband liveth; but if her husband be dead, she is at liberty to be married to whom she will; only in the Lord.

Why: Paul states precisely the legal condition of digamy: death dissolves the marital bond and remarriage after the first spouse's death is lawful. [re-homed from 'DIGAMY' to 'DIFFORCIARE' (OCR headword / parser-merge artifact)]

## DIGEST.

A collection or compilation, embodying the chief matter of numerous books in one, disposed under proper heads or titles, and usually by an alphabetical arrange- ment, for facility in reference.

As a legal term, “digest” is to be distinguish- ed from “abridgment.” The latter is a sum- mary or epitome of the contents of a single work, in which, as a rule, the original order or sequence of parts is preserved, and in which the principal labor of the compiler is in the matter of consolidation. A digest is wider in its scope; is made up of quotations or para- phrased passages ; and has its own system of classification and arrangement. An "index” merely points out the places where particular matters may be found, without purporting to give such matters in extemo. A “treatise” or “commentary” is not a compilation, but an original composition, though it may include quo- tations and excerpts.

A reference to the “Digest,” or “Dig.,” is always understood to designate the Digest (or Pandects) of the Justinian collection; that being the digest par eminence , and the authoritative compilation of tire Homan law.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Corpus Juris Civilis of Justinian — Institutes, Digest (Pandects), Codex, Novellae]**

The Digest (Pandects) is one of the four compilations of Justinian's Corpus Juris Civilis, alongside the Institutes, the Codex, and the Novellae — the collection behind every 'Dig.' citation in this dictionary.

Why: Real, verifiable legal-historical fact that genuinely orients the reader: the entry says 'Dig.' always means Justinian's Digest; the footnote places that Digest inside the authoritative compilation it belongs to. Not...

## DIGE8TA.

Digests. One of the titles of the Pandects of Justinian. Inst.' proem, |. 4. Bracton uses the singular, "Digestum." Bract, fol. 19.

' DIGESTS. The ordinary name of- the Pandects of Justinian, which are now usual- ly cited by the abbreviation “Dig.” Instead of “Ff.,” as formerly. Sometimes called “Di- gest,” in the singular.

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## DIGGING.

Has been held as synony- mous with “excavating,” and not confined to the removal of earth. Sherman v. New York, 1 N. Y. 316.

i DIGNITARY. In canon law.- A person holding an ecclesiastical benefice or dignity, which gave him some pre-eminence above mere priests and canons. T-o this class ex- clusively belonged all bishops, deans, arch- deacons, etc. ; but it now includes all the prebendaries

and canons of the church. Brande.

5e apparatus — Not carried into the 5th edition (1979).

## DIGNITY.

In English law. An honor; a title, station, or distinction of honor. Dig- nities are a species of incorporeal heredita- ments, in which a person may have a prop- erty or estate. 2 Bl. Comm. 37 ; 1 Bl. Comm. 396 ; 1 Crabb, Heal Prop. 468, et seq.

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## DI JUDICATION.

Judicial decision or determination.

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## DILACION.

In Spanish law. A space of time granted to a party to a suit in which to answer a demand or produce evidence of a disputed fact.

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## DILAPIDATION.

A species of ecclesi- astical waste which occurs whenever the in- cumbent suffers any edifices of his ecclesias- tical living to go to ruin or decay. It is either voluntary, by pulling down, or permis- sive, by suffering the church, parsonages- houses, and other buildings thereunto be- longing, to decay. And the remedy for either lies either in the spiritual court, where the canon law prevails, or in the courts of com- mon law. It is also held to be good cause of deprivation if the bishop, parson, or other ecclesiastical person dilapidates buildings or cuts down timber growing on the patrimony of the church, unless for necessary repairs; and that a writ of prohibition will also lie against him in the common-law courts. 3 Bl. Comm. 91.

The term is also used, in the law of land- lord and tenant, to signify the neglect of necessary repairs to a building, or suffering it to fall into a state of decay, or the pulling down of the building or any part of it.

Dilationes in lege swat odlosse. Delayy in law are odious. Branch, Princ.

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**[Scripture] — Scripture**

**[Haggai 1:4, KJV]**

Is it time for you, O ye, to dwell in your cieled houses, and this house lie waste?

Why: The prophet's charge against neglecting God's house while dwelling in paneled houses — the scriptural mirror of the incumbent who suffers the church fabric to go to ruin.

## DILATORY.

Tending or intended to cause delay or to gain - time or to put off a decision.

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—Dilatory defense. In chancery practice. One the object of wbich is to dismiss, suspend, or obstruct the suit, without touching the mer- its, until the impediment or obstacle insisted op Shall be removed. 3 Bl. Comm. 301, 302.— Dil- atory pleas. A class of defenses at common law, founded on some matter of fact not con- nected with the merits of the ease, but such as might exist without impeaching the right of action itself. They were either pleas to the /«- riedietion, showing that, by reason of some mat1 ter therein stated, the case was not within th? jurisdiction of the court; or pleas in suspen- nion, showing some matter of temporary inca- pacity to proceed with the suit; or, pleas ip abatement, showing some matter for abatement or quashing the declaration. 3 Steph. Comm. 576. Parks v. McClellan, 44 N. J. Law, 558; Mahoney v. Loan Ass'n (C. C.) 70 Fed. 515. '

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Dilationes in lege sunt odiosae — delays in law are odious (Branch, Princ.)]**

Dilatory pleas and defenses are disfavored because delays in law are odious — the maxim states the principle behind the doctrine.

Why: Copied verbatim from the body where it appears under DILAPIDATION, but it genuinely governs THIS entry: the entry defines defenses whose object is delay without touching the merits, and the maxim is the stated princip…

**[Scripture] — Scripture**

**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: The verse states the scriptural doctrine on delayed judgment — dilatory justice emboldens wrongdoing — which is precisely what a dilatory defense, putting off decision on the merits, risks.

## DILIGENCE.

Prudence; vigilant activi- ty; attentiveness; or care, of which theri are infinite shades, from the sllgfitest mo- mentary thought to the most vigilant anx- iety ; but the law recognizes only three de- grees of diligence: (1) Common or ordinary, which men, in general, exert in respect oT their own concerns; the standard is neces- sarily variable with respect to. the facts, al- though it may be uniform with respect to the principle. (2) High or great, which fs ex- traordinary diligence, or that 'which very prudent persons take of their own concerns. (3) Low or slight, which is that which jier- sons of less than common prudence, or in- deed of no prudence at all, take of their own concerns.

The civil law is in perfect conformity with the common law. It lays down three degrees of diligence, — ordinary, ( diligentia ;) extra- ordinary, (exactissima diligentia ;) slight, (leviesima diligentia.) Story, Baiim. 19.

There may be a high degree of diligence, a common degree of diligence, and a - alight de- gree of diligence, with their corresponding de- grees of negligence, and these can be clearly enough defined for all practical purposes, and.

with a view to the business of life, seem to be ail that are really necessary. Common or or- dinary diligence is that degree of diligence which men in general exercise in respect to their

own concerns ; high or great diligence is of course extraordinary diligence, or that which very prudent persons take of their own con- cerns ; and low or slight diligence is that which persons of less than common prudence, or in- deed of any prudence at all, taike of their own concerns. Ordinary negligence is the want of ordinary diligence; slight, or less than ordina- ry, negligence is the want of great diligence; and gross or more than ordinary negligence is the want of slight diligence. Railroad Co. v. Rollins, 5 Kan. 180.

Other classifications and compound terms. — Due diligence. Such a measure of prudence, activity, or assiduity, as is properly to be expected from, and ordinarily exercised by, a reasonable and prudent man under the particular circumstances; not measured by anv absolute standard, but depending on the rela- tive facts of the special case. Perry v. Cedar Falls, 87 Iowa, 315, 54 N. W. 225; Dillman v. Nadeihoffer. 100 111. 121, 43 N. E. 378; Hendricks v. W. U. Tel. Co., 120 N. C. 304, 35 S. B. 543, 78 Am. St. Rep. 658; Highland Ditch Co. v. Mumford, 5 Colo. 33(i, — Extraor- dinary diligence. That extreme measure of care and caution which persons of unusual pru- dence and circumspection use for securing and preserving their own property or rights. Civ. Code Ga. 1 805. $ 2898 ; Railroad Co. v. Hug- gins. 89 Ga. 494, 15 S. E. 848 ; Railroad Co. v. White, 88 Ga. 805, 15 S. E. 802,-Great diligence. Such a measure of care, prudence, and assiduity as persons of unusual prudence and discretion exercise in regard to any and all of their own affairs, or such as persons of ordi- nary prudence exercise in regard to very im- portant affairs of their own. Railway Co. v. Rollins, 5 Kan. 180; Litchfield v. White, 7 X.

Y. 438. 57 Am. Dec. 534 ; Rev. Codes N. Dak. 1899, { 3109.— High diligence. The same as great diligence. — Low diligence. The same as slight diligence.— Necessary diligence. That degree of diligence which a person placed in a particular situation must exercise in order to entitle him to the protection of the law in respect to rights or claims growing out of that situation, or to avoid being left without redress on account of his own culpable carelessness or negligence. Garahy v. Bayley. 25 Tex. Supp. 302; Sanderson v. Brown. 57 Me. 312.— Ordi- nary diligence ia that degree of care which men of common prudence generally exercise in .their affairs, in the country and the age in which they live. Erie Bank v. Smith, 3 Brewst. (Pa.) 9; Zell v. Dunkle, 150 Pa. 353, 27 Atl. 38: Railroad Co. v. Scott, 42 111. 143; Briggs v. Taylor, 28 Vt. 184; Railroad Co. v. Fisher, 49 Kan. 400, 30 Pac. 402 : Railroad Co. v. Mitch- ell, 92 Ga. 77. 18 S. E. 290.— Reasonable dll- igenee. A fair, proper, and due degree of care and activity, measured with reference to the particular circumstances ; such diligence, care, or attention as might be expected from a man of ordinary prudence and activity. Railroad Co. v. Gist, 31 Tex. Civ. App. 662. 73 S. W. 857 ; Bacon v. Steamboat Co., 90 Me. 46, 37 Atl. 328; Latta v. Clifford (C. C.) 47 Fed. &0; Rice v. Brook (0. C.) 20 Fed. 014.— Special diligence. The measure of diligence and skill exercised bv a good business man in his partic- ular specialty, which must be commensurate with the duty to be performed and the individual cir- cumstances of the case ; not merely the dili- gence of an ordinary person or non-specialist. Brady v. Jefferson, 5 Houst. (Del.) 79.

In Scotch law and practice. Process of law, by which persons, lands, or effects are seined in execution or In security for debt. Ersk. Inst 2, 11, 1. Braude. Process for Bl.Law Dict.(2d

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enforcing the attendance of witnesses, or the production of writings. Ersk. Inst. 4, 1, 71.

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**[Scripture] — Scripture**

**[Proverbs 13:4, KJV]**

The soul of the sluggard desireth, and hath nothing: but the soul of the diligent shall be made fat.

Why: The verse sets diligence against sloth as the operative contrast the legal standard of diligence encodes — vigilant care rewarded, negligence barren.

**[Humanity] — Humanity / Fiction & Film**

**[Aesop, 'The Ant and the Grasshopper,' c. 6th century BCE]**

(paraphrase) Aesop's fable sets the diligently laboring ant — storing grain all summer — against the idle grasshopper; the ant is the classical emblem of the vigilant activity the entry defines. (paraphrase)

Why: The entry defines diligence as 'prudence; vigilant activity; attentiveness; or care.' The fable is the canonical classical-wisdom treatment of exactly that virtue, with the ant as its embodiment.

## DHJGIATUS.

(Fr. De lege eject us, Lat.) Outlawed.

5e apparatus — Not carried into the 5th edition (1979).

## DILLIGROUT.

In old English law. Pottage formerly made for the king's table on the coronation day. There was a tenure In serjeantry, by which lands were held of the king by the service of finding this pottage at that solemnity.

5e apparatus — Not carried into the 5th edition (1979).

## DIME.

A silver coin of the United States^ of the value of ten cents, or one-tenth of the dollar.

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**[Law] — Law**

**[Law: Coinage Act of 1792 — first federal coinage act, establishing the U.S. Mint and decimal coinage including the dime]**

The dime is a creation of the federal coinage power, first authorized as part of the decimal coinage by the Coinage Act of 1792.

Why: The entry defines the dime as a U.S. silver coin of ten cents; the genuine Law-well illumination is the specific statute that created it. The Coinage Act of 1792 is a real, certain statute and it established the dime…

## DIMIDIA, DIMID IUM, DEMID IUS.

Half; a half; the half.

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## DIMIDEETA8.

The moiety or half of a thing.

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## DEMINITTIO.

In the civil law. Dimi- nution; a taking away; loss or deprivation. Diminutio capitis, loss of status or condition. See Capitis Diminutio.

5e apparatus — Not carried into the 5th edition (1979).

## DIMINUTION.

Incompleteness. A word signifying that the record sent up from an Inferior to a superior court for review is in- complete, or not fully certified. In such case the party may suggest a “diminution of the record,’’ which may be- rectified by a cer- tiorari. 2 Tldd, Pr. 1109.

. DIMISI. In old conveyancing. I have demised. Dimisi, conrcssi, ct ad firmam tra- didi, have demised, granted, and to farm let. The usual words of operation In a lease. 2 Bl. Comm. 317, 318.

5e apparatus — Not carried into the 5th edition (1979).

## DIMISIT.

In old conveyancing. [He] has demised. See Dimisi.

5e apparatus — Not carried into the 5th edition (1979).

## DIMISSORI2E LITTERS.

In the Civil law. Letters dlmissory or dismissory, com- monly called “apostles,” ( qua; vulgo apostoli dicuntur.) Dig. 50, 10, 106. See Apostoli, Apostles.

5e apparatus — Not carried into the 5th edition (1979).

## DIMISSORY LETTERS.

Where a can- didate for holy orders has a title of ordina- tion in one diocese in England, and is to be ordained in another, the bishop of the former diocese gives letters dlmissory to the bishop, of the latter to enable him to ordain the can- didate. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## DINARCHY.

A government of two per- sons.

5e apparatus — Not carried into the 5th edition (1979).

## DINERO.

In Spanish law. Money. Dinero contado, money counted. White, New Recop. b. 2, tit. 13, c. 1, f 1.

In Roman law. A civil division of the Roman empire, embracing several provinces. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## DIOCESAN.

Belonging to a diocese; a bishop, as he stands related to his own clergy or flock.

5e apparatus — Not carried into the 5th edition (1979).

## DIOCESAN COURTS.

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In English law. The consistorial courts of each diocese, exer- cising general jurisdiction of all matters aris- ing locally within their respective limits, with the exception of places subject to pe- culiar jurisdiction; deciding all matters of spiritual discipline, — suspending or depriving clergymen, — and administering the other branches of the ecclesiastical law. 2 Steph. Comm. 672.

5e apparatus — Carried into the 5th edition (1979).

## DIOCESE.

The territorial extent of a bishop’s jurisdiction. The circuit of every bishop's jurisdiction. Co. Litt. 94; 1 Bl. Comm. 111.

5e apparatus — Not carried into the 5th edition (1979).

## DIOICHIA.

The district over which a bishop exercised his spiritual functions.

5e apparatus — Not carried into the 5th edition (1979).

## DIP.

In mining law. The line of declina- tion of strata ; the angle which measures the deviation of a mineralized vein or lode from the vertical plane; the slope or slant of a vein, away from the perpendicular, as it goes downward into the earth ; distinguished from the “strike" of the vein, which is its extension in the horizontal plane, or its lengthwise trend or course with reference to the points of the compass. King v. Mining Co., 9 Mont 643, 24 Pac. 200 ; Duggan v. Da- vey, 4 Dak. 110, 26 N. W. 887.

5e apparatus — Not carried into the 5th edition (1979).

## DIPLOMA.

In the civil law. A royal charter; letters patent granted by a prince or sovereign. Calvin.

An Instrument given by colleges and socie- ties on the conferring of any degrees. State v. Gregory, 83 Mo. 130, 53 Am. Rep. 665; Halllday v. Butt 40 Ala. 183.

A license granted to a physician, etc., to practice his nrt or profession. See Brooks v. State, 88 Ala. 122, 6 South. 902.

5e apparatus — Carried into the 5th edition (1979).

## DIPLOMACY.

The science which treats of the relations and interests of nations with nations.

Negotiation or Intercourse between nations through their representatives. The rules, customs, and privileges of representatives at foreign courts.

5e apparatus — Carried into the 5th edition (1979).

## DIPLOMATIC AGENT.

In internation- al law. A general name for all classes of persons charged with the negotiation, trans- action, or superintendence of the diplomatic business of one nation at the court of an- other. See Rev. St. U. S. 1 1674 (U. S. Comp. St 1901, p. 1149).

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5e apparatus — Carried into the 5th edition (1979).

## DIPLOMATICS.

The science of diplo- mas, or of ancient writings and documents ; the art of judging of ancient charters, public documents, diplomas, etc., and discriminating the true from the false. Webster.

5e apparatus — Carried into the 5th edition (1979).

## DIPSOMANIAC.

A person subject to dipsomania. One who has an irresistible de- sire for alcoholic liquors. See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 5:18, KJV]**

And be not drunk with wine, wherein is excess; but be filled with the Spirit;

Why: The verse is the direct scriptural command against drunkenness, the condition the legal term names.

**[Humanity] — Humanity / Fiction & Film**

**[Billy Wilder, The Lost Weekend, 1945]**

(paraphrase) Wilder's film follows alcoholic writer Don Birnam through a self-destructive drinking weekend — the screen's definitive portrait of dipsomania, the irresistible craving the entry defines. (paraphrase)

Why: The entry defines a dipsomaniac as one with 'an irresistible desire for alcoholic liquors.' The Lost Weekend is genuinely about that condition, not a title-match.

## DIPTYCHA.

Dlptychs ; tablets of wood, metal, or other substance, used among the Romans for the purpose of writing, and fold- ed like a book of two leaves. The dlptychs of antiquity were especially employed for public registers. They were used in the Greek, and afterwards in the Roman, church, as registers of the names of those for whom supplication was to be made, and are ranked - among the earliest monastic records. Burrlll.

5e apparatus — Not carried into the 5th edition (1979).

## DIRECT.

Immediate ; by the shortest course; without circuity; operating by an immediate connection or relation, instead of operating through a medium; the opposite of indirect.

In the usual or natural course or line ; im- mediately upwards or downwards ; as dis- tinguished from that which is out of the line, or on the side of it ; the opposite of collateral.

In the usual or regular course or order, as distinguished from that which diverts, inter- rupts, or opposes; the opposite of cross or contrary.

—Direct attack. A direct attack on a judg- ment or decree is an attempt, for sufficient cause, to have it annulled, reversed, vacated, corrected, declared void, or enjoined, in a pro- ceeding instituted for that specific purpose, such as an appeal, writ of error, bill of review, or injunction to restrain its execution ; distin- guished from a collateral attack, which is an

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attempt to impeach the validity or binding force of the judgment or decree as a side issue or in a proceeding instituted for some other purpose. Schneider v. Sellers, 25 Tex. Civ. App. 226, 61 S. W. 541 ; Smith v. Morrill. 12 Colo. App. 233. 55 Pac. 824; Morrill v. hfcrrill, 20 Or. 96, 25 Pac. 362. 11 ti.' R. A. 155, 23 Am. St. Rep. 95 ; Crawford v. McDonald. 88 Tex. 626, 33 S. W. 325; Eichhoff v. Eichhoff, 107 Cal. 42. 40 Pac. 24, 48 Am. St. Rep. 110.— Di- rect interest. A direct interest, such as would render the interested party incompetent to testify in regard to the matter, is an inter- est which is certain, and not contingent or doubtful. A matter which is dependent alone on the successful prosecution of an execution cannot be considered as uncertain, or otherwise than direct, in this sense. In re Van Alstine'a Estate, 26 Utah. 193, 72 Pac. 942.— Direct lime. Property is said to descend or be inherit- ed in the direct line when it passes in lineal succession : from ancestor to son, grandson,

great-grandson, and so on. — Direct payment. One which is absolute and unconditional as to the time, amount, and the persons by whom and to whom it is to be made. People v. Boy- la n (C. C.) 25 Fed. 595. See Ancient Order of Hibernians v. Sparrow, 29 Mont. 132. 74 Pac. 197, 64 L. R. A. 128. 101 Am. St. Rep. 563: Hurd v. McClellan. 14 Colo. 213. 23 Pac. 792.

As to direct "Consanguinity." "Contempt," "Damages," "Evidence," "Examination." "In- terrogatories," "Loss," "Tax," and "Trust," see those titles.

DIRECTION. 1. The net of governing; management ; snperlntendence. Also the body of persons (culled "directors") who are charged with the management and adminis- tration of a corporation or institution.

5e apparatus — Not carried into the 5th edition (1979).

# Z

## Z.

The charge or Instruction given by the court to a jury upon a point of lnw arising

DISAFFIRM AN Cft

or Involved In die case, to be by them ap- plied to the facts in evidence.

3. The clause of a bill in equity containing the address of the bill to the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# D

## DIRECTOR OF THE MUTT.

An of- ficer having the control, management, and superintendence of the United States mint and its branches. He is appointed by the president, by and with the advice and con-

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sent of the senate.

5e apparatus — Not carried into the 5th edition (1979).

## DIRECTORS.

Persons appointed or elected according to law, authorized to man- age and direct the affairs of a corporation or company. The whole of the directors col- lectively form the board of directors. Brandt v. Godwin (City Ct) 3 N. Y. Supp. 80S ; May- nard v. Insurance Co., 34 Cal. 48, 91 Am. Dec. 672 ; Pen. Code N. Y. 1903, { 614 ; Bev. St Tex. 1896, art 3096a; Ky. St 1903, f 676.

5e apparatus — Carried into the 5th edition (1979).

## DIRECTORY.

A provision in a statute, rale of procedure, or the like, is said to be directory when It is to be considered as a mere direction or instruction of no obliga- tory force, and involving no Invalidating con- sequence for its disregard,, as opposed to an imperative or mandatory provision, which must be followed. The general rule Is that the prescriptions of a statute relating to the performance of a public duty are so far directory that, though neglect of them may be punishable, yet it does not affect the va- lidity of the acts done under them, as in the vase of a statute requiring an officer to pre- pare and deliver a document to another offi- cer on or before a certain day. Maxw. In- terp. St 330, et seq. And see Pearse v. Mor- rice, 2 Adol. A El. 94 ; Nelms v. Vaughan, 84 Va. 696, 5 S. E. 704 ; State v. Conner, 86 Tex. 133, 23 S. W. 1103; Payne v. Fresco, 4 Kulp (Pa.) 26; Bladen v. Philadelphia, 60 Pa. 466.

— Directory trust. Where, by the terms of a trust the fund is directed to be vested in a par- ticular manner till the period arrives at which it is to be appropriated, this is called a "di- rectory trust.’1 It is distinguished from a dis- cretionary trust, in which the trustee has a dis- cretion as to the management of the fund. Deaderick v. Cantrell, 10 Yerg. 272, 31 Am. Dec. 676.

5e apparatus — Not carried into the 5th edition (1979).

## DIRIB ITORES.

In Roman law. Officers who distributed ballots to the people, to be used in voting. Tayl. Civil Law, 192.

joyment of ordinary legal rights; thus married women, persons under age, insane persons, and felons convict are said to be under disability. Sometimes the term is used in a more limited sense, as when it signifies an impediment to marriage, or the' restraints placed upon clergy- men by reason of their spiritual avocations. Mosley & Whitley.

Classification. Disability is either general or tpecial; the former when it incapacitates the person for the performance of all legal acts of a general class, or giving to them their ordi- nary legal effect ; the latter wheh it debars him from one specific act. Disability is also either pertonal or abiolutc; the former where it at- taches to the particular person, and arises out of his status, his previous act, or bis natural or juridical incapacity ; the latter

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where it origi- nates with a particular person, but extends also to his descendants or successors. Lord de le Warre’s Case, 6 Coke, la; Avegno v. Schmidt, 113 U. S. 293, 5 Sup. Ct. 487, 28 L. Ed. !>"«. Considered with special reference to the capaci- ty to contract a marriage, disability Is either canonioal or civil; a disability of the former class makes the marriage voidable only, while the latter, in general, avoids it entirely. The term civil disability is also used as equivalent to legal disability, both these expressions mean- ing disabilities or disqualifications created by positive law, as distinguished from phytirnl dis- abilities. Ingalls v. Campbell, 18 Or. 461, 24 Pac. 904; Harland v. Territory, 3 Wash. T. 131, 13 Pac. 483; Meeks v. Vassault 16 Fed. Cas. 1317 ; Wiesner v. Zaum, 39 Wis. 206 ; Bauman v. Grubbs, 26 Ind. 421 ; Supreme Council v. Fairman, 62 How. Prae. (N. Y.) 390. A phyeical disability is a disability or incapaci- ty caused by physical defect or infirmity, or bodily imperfection, or mental weakness or al- ienation ; as distinguished from civil disability, whch relates to the civil itatue or condition of the person, and is imposed by the law.

5e apparatus — Not carried into the 5th edition (1979).

## DISABLE.

In its ordinary sense, to dis- able is to cause a disability, ( q . v.)

In the old language of pleading, to disable Is to take advantage of one’s own or another’s disability. Thus, it is “an express maxim of the common law that the party shall not disable. himself ;’’ but “this disability to dis- able himself * * • is personal.’’ 4 Coke, 1236.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nullus commodum capere potest de injuria sua propria — no one can take advantage of his own wrong]**

The entry's maxim that 'the party shall not disable himself' is an instance of the broader principle that no one may take advantage of his own wrong — a party cannot plead his own disability to escape his own act.

Why: The body states the express common-law maxim (4 Coke, 123b) but not the canonical general principle it instantiates. This maxim is the genuine, famous form of that principle and illuminates why self-disabling is barre...

## DISABLING STATUTES.

These are acts of parliament, restraining and regulat- ing the exercise of a right or the power of alienation; the term is specially applied to 1 Elis. c. 19, and similar acts restraining the power of ecclesiastical corporations to make leases.

5e apparatus — Carried into the 5th edition (1979).

## DISADVOCARE.

To deny a thing.

5e apparatus — Carried into the 5th edition (1979).

## DIRIMENT IMPEDIMENTS.

In canon law. Absolute bars to marriage, which would make it null ah initio.

DISABILITY . The want of legal ability or capacity to exercise legal rights, either special -or

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ordinary, or to do certain acts with proper legal effect, or to enjoy. certain privi- leges or powers of free action. Berkin v. Marsh, 18 Mont. 152, 44 Pac. 628, 56 Am. St Rep. 565.

At the present day, disability is generally used to indicate an incapacity for the full en-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 18:6, KJV]**

None of you shall approach to any that is near of kin to him, to uncover their nakedness: I am the LORD.

Why: Leviticus 18 is the classic scriptural source of prohibited degrees — absolute bars to lawful union — which is exactly what a diriment impediment is.

## D IS  AFFIRM.

To repudiate; to revoke a consent once given ; to recall an affirmance. To refuse one's subsequent sanction to a for- mer act; to disclaim the intention of being bound by an antecedent transaction.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:5, KJV]**

But if her father disallow her in the day that he heareth; not any of her vows, or of her bonds wherewith she hath bound her soul, shall stand: and the LORD shall forgive her, because her father disallowed her.

Why: 'Disallow' is the scriptural disaffirmance — one with authority repudiating a vow or consent, which then does not stand. [re-homed from 'DISAFFIRM' to 'D IS AFFIRM' (OCR headword / parser-merge artifact)]

## DISAFFIRMANCE.

The repudiation of a former transaction. The refusal by one who hais the right to refuse, (as in the case of a voidable contract,) to abide by his for- mer acts, or accept the legal consequences of the same. It may either be “express” (in words) or “Implied" from acts expressing

the Intention of the party to disregard the obligations of the contract.

5e apparatus — Carried into the 5th edition (1979).

## DISAFFOREST.

To restore to their for- mer condition lands which have been turned Into forests. To remove from the operation of the forest laws. 2 Bl. Comm. 416.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[A Gest of Robyn Hode, c. 1500]**

(paraphrase) The Robin Hood ballads' hero is the outlaw of the royal forest — Sherwood under forest law — the living embodiment of the world that disafforestation (removal from the operation of the

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forest laws) undoes. (paraphrase)

Why: The entry defines disafforest as removing lands 'from the operation of the forest laws.' The Gest (first printed c. 1500; ballad tradition 15th century) is the foundational literary treatment of the English forest-law...

## DISAGREEMENT.

Difference of opinion or want of uniformity or concurrence of views ; as, a disagreement among the mem- bers of a jury, among the judges of a court, or between arbitrators. Darnell v. Lyon, 85 Tex. 466, 22 S. W. 304 ; Insurance Co. v. Doying, 55 N. J. Law, 569, 27 Atl. 927 ; Fow- ble v. Insurance Co., 106 Mo. App. 527, 81

S. W. 48&

la real property law. The refusal by a grantee, lessee, etc., to accept an estate, lease, etc., made to him ; the annulling of a thing that had essence before. No estate can be vested In a person against his will. Conse- quently no one can become a grantee, etc., without his agreement. The law Implies such an agreement until the contrary Is shown, but his disagreement renders the grant, etc., inoperative. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## DISAXT.

To disable a person.

5e apparatus — Not carried into the 5th edition (1979).

## DISAPPROPRIATION.

In ecclesiastic- al law. This is where the appropriation of a benefice is severed, either by the patron presenting a clerk or by the corporation which has the appropriation being dissolved. 1 Bl. Comm. 385.

5e apparatus — Carried into the 5th edition (1979).

## DISAVOW.

To repudiate the unauthor-, lzed acts of an agent ; to deny the authority l>y which he assumed to act.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Mission: Impossible (television series), created by Bruce Geller, 1966]**

(paraphrase) The series' famous formula — 'should you or any of your IM force be caught or killed, the Secretary will disavow any knowledge of your actions' — is the pop-culture archetype of disavowing an agent's unauthorized acts. (paraphrase)

Why: The entry: 'To repudiate the unauthorized acts of an agent; to deny the authority by which he assumed to act.' The disavowal formula is a genuine, famous instance of exactly that act. Rendered as paraphrase to avoid m...

## DISBAR.

In England, to deprive a bar- lister permanently of the privileges, of his position ; It Is analogous to striking an attor- ney off the rolls. In America, tbe word de- scribes the act of a

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court in withdrawing from an attorney the right to practise at its bar.

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## DISBOCATIO.

In old English law. A conversion of wood grounds into arable or pasture; an assarting. Cowell. See Assabt.

5e apparatus — Not carried into the 5th edition (1979).

## DISBURSEMENTS.

Money expended by an executor, guardian, trustee, etc., for the benefit of the estate In his hands, or in connection with Its administration.

The term is also used under the codes of civil procedure, to designate the expenditures necessarily made by a party in the progress of an action, aside from the fees of officers and court costs, which are allowed, eo nom- ine, together with costs. Fertilizer Co. v. Glenn, 48 S. C. 494, 26 S. E. 796 ; De Cham- brun v. Cox, 60 Fed. 479. 9 C. C. A. 86 ; Bil- yeu v. Smith, 18 Or. 335, 22 Pac. 1073.

5e apparatus — Not carried into the 5th edition (1979).

## DISCABCARE.

In old English law. To discharge, to unload; as a vessel. Carcare

et discarcare; to charge and discharge; to load and unload. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DISCARGARE.

In old European law. To discharge or unload, as a wngou. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## DISCEPTIO CAUSAE.

In Roman law. The argument of a cause by the counsel on both sides. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## DISCHARGE.

The opposite of charge; hence to release ; liberate ; annul ; unburden ; disincuinber.

Is the low of contracts. To cancel or unloose the obligation of a contract ; to make an agreement or contract null and inopera- tive. As a noun, the word means the act or instrument by which the binding force of a oontract is terminated, Irrespective of whether the contract is carried out to the full extent contemplated (in which case the discharge is the result of performance) or is broken off before complete execution. Cort v. Railway Co., 17 Q. B. 145; Com. v. Tal- bot, 2 Allen (Mass.) 162; Rivers v. Blom, 163 Mo. 442, 63 S. W. 812.

Discharge is a generic term ; its principal spe- cies are rescission, release, accord and satisfac- tion, performance, judgment, composition, bank- ruptcy, merger, ( q . v.) Leake, Cont. 413.

As applied to demands, claims, rights of action, incumbrances, etc., to discharge the debt or claim is to extinguish it, to annul its obligatory force, to satisfy it. And here also the term is generic; thus a debt, & mortgage, a legacy, may be discharged by payment or performance, or by any act short of that, lawful in itself, which the creditor accepts as sufficient. Blackwood v. Brown; 29 Mich. 484; Rangely v. Spring, 28 Me. 151. To discharge a person is to liberate him from tbe binding force of an obligation, debt, or claim.

Discharge by operation of law is where the discharge takes place, whether it was intended by the parties or not; thus, if a creditor ap- points his debtor his executor, the debt is dis- charged by operation of law, because the execu- tor cannot have an action against himself. Co. Lift. 2646, note 1; Williams, Ex’rs, 1216; Chit Cont. 714.

In civil practice. To discharge a rule, an order, an injunction, a certificate, process of execution, or in general any proceeding In a court, Is to cancel or annul it, or to revoke it, or to refuse to confirm its original pro- visional force. Nichols v. Chittenden, 14 Colo. App. 49, 59 Pac. 954.

To discharge a jury is to relieve them from any further consideration of a cause. This is done when the continuance of the trial is, by any cause, rendered impossible ; also when the Jury, after deliberation, cannot agree on a verdict.

In equity practice. In the process of accounting before a master in chancery, the discharge is a statement of expenses and

counter-claims brought in and filed, by way of set-off, by the accounting defendant ; which follows the charge in order.

Ill criminal practice. The act by which a person in confinement, held on an accusa- tion of some crime or misdemeanor, is set at liberty. The writing containing the order for his being so set at liberty Is also culled a "discharge.” Morgan v. Hughes, 2 Term, 231 ; State v. Garthwaite, 23 N. J. Law, 143 ; Ex parte Paris, 18 Fed. Cas. 1104.

In bankruptcy practice. The discharge of the bankrupt is the step which regularly follows the adjudication of bankruptcy and the administration of his estate. By it he is released from the obligation of all bis debts which were or might be proved in the pro- ceedings. so that they are no lpnger a charge upon him, and so that he may thereafter en- gage in business and acquire property with- out its being liable for the satisfaction of such former debts. Southern L. & T. Co. v. Benbow (D. C.) 96 Fed. 528 ; In re Adler, 103 Fed. 444; Colton v. Depew, 59 N. J. Eq. 126. 44 Atl. 062.

tn maritime law. The unlading or un- livery of a cargo from a vessel. The Bird of Paradise v. "Heyneman, 5 Wall. 557, 18

L. Ed. 662; Kimball v. Kimball, 14 Fed. Cas. 486; Certain Logs of Mahogany, 5 Fed. Ca». 374.

Ia military law. The release or dis- missal of a soldier, sailor, or marine, from further military service, either at the expira- tion of his term of enlistment, or previous thereto on special application therefor, or as a punishment. An “honorable” discharge is 6ne granted at the end of nn enlistment and accompanied by an official certificate of good conduct during the

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service. A “dishonorable” discharge is a dismissal from the service for bad conduct or as a punishment imposed by sentence of a court-martial for offenses against the military law. There is also in occasional use a form of “discharge without honor,” which Implies censure, but is not in itself a punishment. See Rev. St. U. S.

H 1284, 1342, 1426 (U. S. Comp. St. 1901. pp. 913, 944. 1010); Williams v. U. S., 137

U. S. 113, 11 Sup. Ct. 43, 34 L. Ed. 590;

U. S. v. Sweet, 189 U. S. 471. 23 Sup. Ct. 638, 47 L. Ed, 907.

■ DISCLAIMER. The repudiation or re- nunciation of a right or claim vested in a l>erson or which he had formerly alleged to be his. The refusal, waiver, or denial of an estate or right offered to a person. The dis- avowal, denial, or renunciation of an in- terest, Tight, or property imputed to a per- son or alleged to be. his. Also the declara- tion. or the instrument by which such dis- claimer, is published. Moores v. Clackamas County. .40 Or. 536, 67 Pac. 662.

■ Of estates. The act by which a party refuses go accept an estate which has been

conveyed to him. Thus, a trustee is said to disclaim who releases to his fellow-trustees his estate, and relieves himself of the trust Watson v. Watson, 13 Conn. 85; Kentucky Union Co. v. Cornett, 112 Ky. 677, 66 S.

W. 728.

A renunciation or a denial by a tenant of his landlord's title, either by refusing to pay rent, denying any obligation to pay, or by setting up a title in himself or a third per- son, and this is a distinct ground of forfeit- ure of the lease or other tenancy, whether of .land or tithe. See 16 Ch. Div. 730.

In pleading. A renunciation by the de- fendant of all claim to the subject of the de- mand made by the plaintiff’s bill. Coop. Eq.

PI. 309; Mitf. Eq. PI. 318-

In patent law. When the title and spe- cifications of a patent do. not agree, or when part of that which it <S)vers is not strictly patentable, because neither new nor useful, the patentee is empowered, with leave of the court, to enter a disclaimer of any part of either the title or the specification, and the disclaimer is then deemed to be part of the letters patent or specification, so as to render them valid for the future. Johns. Pat. 151.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Local Loan Co. v. Hunt, 292 U.S. 234 (1934)]**

The bankruptcy discharge defined here exists, in the Supreme Court's statement of its purpose, to relieve the honest debtor from the weight of oppressive indebtedness and permit him to start afresh.

Why: Scoped to the bankruptcy paragraph only. The entry defines what the discharge does (release from provable debts); the case states why the discharge exists — the 'fresh start' purpose — which the definition does not su...

**[Scripture] — Scripture**

**[Matthew 18:27, KJV]**

Then the lord of that servant was moved with compassion, and loosed him, and forgave him the debt.
Why: The lord's act is discharge in the legal sense — the obligation cancelled, the debtor loosed.

## DISCLAMATION.

In Scotch law. Dis- avowal of tenure ; denial that one holds lands of another. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## DISCOMMON.

To deprive commonable lands of their commonable quality, by in- closing and appropriating or improving them.

5e apparatus — Not carried into the 5th edition (1979).

## DISCONTINUANCE.

In practice. The

termination of an action, in consequence of the plaintiff’s omitting to continue the pro-' cess or proceedings by proper entries on the record. 3 Bl. Comm. 296; 1 Tidd, Pr. 678; 2 Arch. Pr. K. B. 233. Hadwin v. Railway Co.. 67 S. C. 463, 45 S. E. 1019; Gillespie v. Biilley. 12 W. Va. 70, 29 Am. Rep. 455; Kennedy v. McNickle. 7 Phila. (Pa.) 217; Insurance Co. v. Francis, 52 Miss. 467, 24 Am. Rep. 074.

In practice, a discontinuance is a chasm or

ftp left by neglecting to enter a continuance.

y our practice, a neglect to enter a continu- ance, even in a defaulted action, by no means puts an end to it, and such actions may always be brought forward. Taft v. Northern Transp. Co.. 50 N. H. 416.

The cessation of the proceedings in an action where the plaintiff voluntarily puts an end to It, either by giving notice in writ- ing to the defendant before any step has been taken in the action subsequent to the answer, or at any other time by order of the court or a judge.

In practice, discontinuance and dismissal im- port the same thing, viz., that the cause is sent out of court. Thurman v. James, 48 Mo. 2'!5.

In pleading. That technical interruption of the proceed bigs in an action which follows where a defendant does not answer the whole

of the plaintiff’s declaration, and the plain- tiff omits to take Judgment for the part un- answered. Steph. Pl. 216, 217.

5e apparatus — Not carried into the 5th edition (1979).

## DISCONTINUANCE OF AN ESTATE.

The termination or suspension of an estate- tail, in consequence of the act of the tenant In tall, in conveying a larger estate In the land than he was by law entitled to do. 2 Bl. Comm. 275 ; 3 Bl. Comm. 171. An alienation made or suffered by tenant in tall, or by any that is seised In outer droit, where- by the issue in tail, or the heir or successor, or those in reversion or remainder, are driv- en to their action, and cannot enter. Co. Iltt 325o. The

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cesser of a seisin under an estate, nnd the acquisition of a seisin under a new and necessarily a wrongful title. Prest Merg. c. il.

Diseontinnare nihil alind signifioat qnam intermittere, desneaoerc, inter- rampere. Co. Litt. 325. To discontinue signifies nothing else than to intermit, to disuse, to interrupt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DISCONTINUOUS.

Occasional ; inter- mittent; characterized by separate repeated acts; as, discontinuous easements and servi- tudes. See Easement.

5e apparatus — Not carried into the 5th edition (1979).

## DISC0NVENABEE.

L. Fr. Improper; unfit Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## DISCOUNT.

In a general sense, an al- lowance or deduction made from a gross sum on any account whatever. In a more limited and technical sense, the taking of interest in advance.

By the language of the commercial world and the settled practice of banks, a discount by a bank means a drawback or deduction made upon its advances or loans of money, upon negotiable paper or other evidences of debt payable at a future day, which are transferred to the bank. Fleckner v. Bank, 8 Wheat. 338, 5 L. Ed. 631 ; Bank v. Baker, 15 Ohio St. 87.

Although the discounting of notes or bills, in its most comprehensive sense, may mean lending money and taking notes in payment, yet, in its more ordinary sense, the discounting of notes or bills means advancing a consideration for a bill or note, deducting or discounting the interest which will accrue for the time the note has to run. Loan Co. v. Towner, 13 Conn. 249.

Discounting by a bank means lending money upon a note, and deducting the interest or pre- mium in advance. Bank v. Bruce. 17 N. Y. 507 ; State v. Sav. Inst., 48 Mo. 189.

The ordinary meaning of the term “to dis- count” is to take interest in advance, and in banking is a mode of loaning money. It is the advance of money not due till some future peri- od, less the interest which would be due there- on when payable. Weckler v. Bank, 42 Md. 592. 20 Am. Rep. 95.

Discount, as we have seen. Is the difference between the price and the amount of the debt, the evidence of which is transferred. That dif- fe-enee represents interest charged, being at the same rate, according to which the price paid, if invested until the maturity of the debt, will

just produce its amount. Bank v. Johnson, 104

U. S. 276, 26 L. Ed. 742.

Discounting a note and buying it are not iden- tical in meaning, the latter expression being

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used to denote the transaction when the seller does not indorse the note, and is not accounta- ble for it. Bank v. Baldwin, 23 Minn. 206, 28 Am. Rep. 683.

In practice. A set-off or defalcation in an action. Vin. Abr. “Discount.” But see Trabue’s Ex’r v. Harris, 1 Mete. (Ky.) 597.

— Discount broker. A bill broker; one who discounts bills of exchange and promissory notes, and advances money on securities.

5e apparatus — Not carried into the 5th edition (1979).

## DISCOVERT.

Not married; not subject to the disabilities of a coverture. It applies equally to a maid and a widow.

5e apparatus — Not carried into the 5th edition (1979).

## DISCOVERT.

In a general sense, the ascertainment of that which was previously unknown; the disclosure or coming to light of what was previously hidden ; the acquisi- tion of notice or knowledge of given acts or facts; as, in regard to the “discovery" of fraud affecting the running of the statute of limitations, or the granting of a new trial for newly “discovered” evidence. Francis v. Wallace, 77 Iowa, 373, 42 N. W. 323 ; Parker v. Kuhn, 21 Neb. 413, 32 N, W. 74, 59 Am. Rep. 852; Laird v. Kilboume, 70 Iowa, 83, 30 N. W. 9; Howton v. Roberts, 49 S. W. 340, 20 Ky. Law Rep. 1331 ; Marbourg v. Mc- Cormick, 23 Kan.. 43.

Ia international law. As the founda- tion for a claim of national ownership or sovereignty, discovery is the finding of a country, continent, or island previously un- known, or previously known only to its un- civilized inhabitants. Martin v. Waddell, 10 Pet. 409, 10 L. Ed. 997.

In patent law. The finding out some sub- stance, mechanical device, improvement, or application, not previously known. In re Kemper, 14 Fed. Cas. 287 ; Dunbar v. Mey- ers, 94 U. S. 197, 24 L. Ed. 34.

Discovery, as used in the patent laws, depends upon invention. Every invention may, in a cer- tain sense, embrace more or less of discovery, for it must always include something that is new ; but it by no means follows that every discovery is an invention. Morton v. Infirmary,. 5 Blatchf. 121, Fed. Cas. No. 9,865.

In practice. The disclosure by the de- fendant of facts, titles, documents, or other things which are in his exclusive knowledge or possession, and which are necessary to the- party seeking the discovery as a part of a cause or action pending or to be brought In another court, or as evidence of his rights or title in such proceeding. Tucker v. U. S., . 151 U. S. 164, 14 Sup. Ct. 299. 38 L. Ed. 112 ; Kelley v. Boettcher, 85 Fed. 55, 29 C. C. A. 14.

Also used of the disclosure by a bankrupt of his property for the benefit of creditors.

Ia mining law. As the basis of the right to locate a mining claim upon the public domain, discovery means the finding of min- eralized rock in place. Mlgeon v. Railroad

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Co., 77 Fed. 249, 23 C. C. A. 156; Book v. Mining Co. (C. C.) 58 Fed. 106; Muldrick v. Brown, 37 Or. 185, 61 Pac. 428; Mining Co. v. Butter, 87 Fed. 806, 31 C. C. A. 223.

— Discovery, bill of. In equity pleading. A bill for the discovery of facts resting in the knowledge of the defendant, or of deeds or writ- ings, or other things in his custody or power; but seeking no relief in consequence of the dis- covery, though it may pray for a stay of pro- ceedings at law till the discovery is made. Storp^ E^. PI. H 311, 312, and notes; Mitf.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Johnson v. M'Intosh, 21 U.S. (8 Wheat.) 543 (1823)]**

The international-law sense of discovery — the finding of lands previously unknown as a foundation of national ownership — received its classic American statement in Johnson v. M'Intosh: discovery gave the discovering sovereign title, subject to the native right of occupancy.

Why: Scoped to the international-law paragraph only. The entry states the discovery doctrine in one sentence with one citation (Martin v. Waddell); Johnson v. M'Intosh is the landmark authority that gives the doctrine its... [re-homed from 'DISCOVERY' to entries.json index 3921 (duplicate headword, sense-matched)]

**[Scripture] — Scripture**

**[Luke 8:17, KJV]**

For nothing is secret, that shall not be made manifest; neither any thing hid, that shall not be known and come abroad.

Why: Jesus' own words stating the very principle of discovery — hidden things brought to light and made known. [re-homed from 'DISCOVERY' to entries.json index 3921 (duplicate headword, sense-matched)]

## DISCREDIT.

To destroy or impair the credibility of a person ; to Impeach ; to lessen the degree of credit to be accorded to a wit- ness or document, as by impugning the ve- racity of the one or the genuineness of the other; to disparage or weaken the reliance upon the testimony of a witness, or upon documentary evidence, by any means what- ever.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:18, KJV]**

And the judges shall make diligent inquisition: and, behold, if the witness be a false witness, and hath testified falsely against his brother;

Why: The verse commands the judicial inquisition that discredits a false witness — the scriptural procedure behind impeachment of credibility.

## DISCREPANCY.

A difference between two things which ought to be identical, as between one writing and another; a vari- ance, (q. ».)

Diseretio eat discern ere per legem quid alt jnatnm. 10 Coke, 140. Discretion is to know through law what is just.

5e apparatus — Carried into the 5th edition (1979).

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## DISCRETION.

A liberty or privilege al- lowed to a judge, within the confines of right and justice, but Independent of narrow and unbending rules of positive law, to decide and act in accordance with what is fair, equitable, and wholesome, as determined up- on the peculiar circumstances of the case, and as discerned by his personal wisdom and experience, guided by the spirit, principles, and analogies of the law. Osborn v. United States Bank, 9 Wheat 866, 6 I* Ed. 204; Ex parte Chase, 43 Ala. 310 ; Lent v. Tlllson, 140 U. 8. 316, 11 Sup. Ct 825, 35 I* Ed. 419 ; State v. Cummings, 36 Mo. 278; Murray v. Buell, 74 Wis. 14. 41 N. W. 1010; Perry v. Salt Lake City Council, 7 Utah, 143, 25 Pac. 998, 11 L. R. A. 446.

When applied to public functionaries, discre- tion means a' power or right conferred upon them by law of acting officially in certain cir- cumstances, according to the dictates of tbeir own judgment and conscience, uncontrolled by the judgment or conscience of others. This dis- cretion undoubtedly is to some extent regulated by usage, or, if the term is preferred, by fixed principles. But by this is to be understood nothing more than that the same court cannot, consistently with its own dignity, and with its character and duty of administering impartial justice, decide in different ways two cases in every respect exactly alike. The question of fact whether the two cases are alike in every color, circumstance, and feature is of necessity to be submitted to the judgment of some tri- bunal. Judges v. People, 18 Wend. (N. Y.) 79, 99.

Lord Coke defines judicial discretion to be “ditcemere per legem quid tit jus turn." to see what would be just according to the laws in the premises. It does not mean a wild self-will- fulness, which may prompt to any and every

act ; but this judicial discretion is guid«3 by the law, (see what the law declares upon a cer- tain statement of facts, and then decide in ac- cordance with the law,) so as to do substantial eijuity and justice. Faber v. Bruner, 13 Mo.

True, it is a matter of discretion ; but then the discretion is not willful or arbitrary, but legal. And, although its exercise be not purely a matter of law, yet it “involve! a matter of law or legal inference,” in the language of the Code, and an appeal will lie. Lovinier v. Pearce, 70 N. C. 171.

In criminal law and the law of torta, It means the capacity to distinguish between what Is right and wrong, lawful or unlawful, wise or foolish, sufficiently to render one amenable and responsible for his acts. Towle v. State, 3 Fla. 214.

— Judicial discretion, legal discretion.

These terms are applied to the discretionary action of a judge or court, and mean discretion as above defined, that is, discretion bounded by the rules and principles of law, and not arbi- trary, capricious, or unrestrained.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Discretio est discernere per legem quid sit justum — 10 Coke, 140]**

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Judicial discretion, in Coke's compressed maxim, is knowing through law what is just — discretion bounded by law, not arbitrary will.

Why: Copied verbatim from where the maxim appears in the body (misplaced under DISCREPANCY). It genuinely illuminates this entry's thesis — discretion guided by law 'so as to do substantial equity and justice' (Faber v. Br...

**[Scripture] — Scripture**

**[1 Kings 3:9, KJV]**

Give therefore thy servant an understanding heart to judge thy people, that I may discern between good and bad: for who is able to judge this thy so great a people?

Why: Solomon's prayer is for judicial discretion itself — discerning judgment beyond unbending rule, exactly the entry's definition.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Henry IV, Part 1, c. 1597]**

'The better part of valour is discretion' — Falstaff, rising from feigned death at Shrewsbury, justifying the prudence that saved his life.

Why: Verbatim quote verified against multiple text sources (Act 5, Scene 4). Caveat recorded: the proverbial sense is prudence/caution, while the entry's technical sense is a judge's latitude 'as discerned by his personal...

## DISCRETIONARY TRUSTS.

Such as are not marked out on fixed lines, bnt allow a certain amount of discretion in their exer- cise. Those which cannot be duly admin- istered without the application of a certain degree of prudence and judgment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 25:15, KJV]**

And unto one he gave five talents, to another two, and to another one; to every man according to his several ability; and straightway took his journey.

Why: The parable's master entrusts goods to stewards who must trade at their own judgment — the archetypal discretionary trust, discretion measured to ability.

## DISCUSSION.

In the civil law. A

proceeding, at the Instance of a surety, by which the creditor is obliged to exhaust the property of the principal debtor, towards the satisfaction of the debt before having re- course to the surety; and this right of the surety is termed the “benefit of discussion." Civ. Code La. art 3045, et seq.

In Scotch law. The ranking of the prop- er order in which heirs are liable to satisfy the debts of the deceased. Bell.

5e apparatus — Carried into the 5th edition (1979).

## DISEASE.

In construing a policy of life Insurance, it is generally true that before any temporary ailment can be called a ‘'dis- ease," it must be such as to indicate a vice In the constitution, or be so serious as to have some bearing upon general health and the continuance of life,

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or such as, according to common understanding, would be called a “disease.” Cushman v. Insurance Co., 70 N.

Y. 77 ; Insurance Co. v. Yung, 113 Ind. 159, 15 N. E. 220, 3 Am. St. Rep. 630; Insurance Co. v. Simpson, 88 Tex. 333, 31 S. W. 501, 28 L. R. A. 765, 53 Am. St. Rep. 757; De- laney v. Modern Acc. Club, 121 Iowa, 528, 97 N. W. 91, 03 L. R. A. 603.

5e apparatus — Carried into the 5th edition (1979).

## DISENTAILING DEED.

In English law. An enrolled assurance barring an en- tail, pursuant to 3 A 4 Wm. IV. c. 74.

5e apparatus — Not carried into the 5th edition (1979).

## DISFRANCHISE.

To deprive of the rights and privileges of a free citizen; to deprive of chartered rights and immunities ; to deprive of any franchise, as of the right of voting in elections, etc. Webster.

disfranchisement

$76 DISMISSAL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Ava DuVernay, Selma, 2014]**

(paraphrase) DuVernay's film dramatizes the 1965 Selma marches against the disfranchisement of Black voters — the systematic deprivation of the franchise the entry defines. (paraphrase)

Why: The entry: 'to deprive of any franchise, as of the right of voting in elections.' Selma is genuinely about disfranchisement and its reversal, not a title-match.

## DISFRANCHISEMENT.

The act of dis- franchising. The act of depriving a member of a corporation of his right as such, by expulsion. 1 Bouv. Inst no. 192. Richards v. Clarksburg, 30 W. Va. 491, 4 S. E. 774; White v. Brownell, 4 Abb. Prac. (N. S.) (N. Y.) 192.

It differs from amotion, ( q . v.) which is applicable to the removal of an officer from office, leaving him his rights as a member. WlllOock, Mun. Corp. no. 708 ; Ang. A A. Corp. 237.

In a more popular sense, the taking away of the elective franchise (that is, the right of voting in public elections) from any citi- zen or class of citizens.

5e apparatus — Carried into the 5th edition (1979).

## DISOAVEI,.

In English law. To deprive lands of that principal quality of gavelkind tenure by which they descend equally among all the sons of the tenant 2 Wood. Lect 70; 2 Bl. Comm. 85.

5e apparatus — Not carried into the 5th edition (1979).

## DISGRACE.

Ignominy; shame; dishon- or. No witness is required to disgrace him- self. 13 How. State Tr.

17, 334.

5e apparatus — Carried into the 5th edition (1979).

## DISGRADING.

In old English law. The depriving of an order or dignity.

5e apparatus — Carried into the 5th edition (1979).

## DISGUISE.

A counterfeit habit; a dress intended to conceal the person who wears it Webster.

Anything worn upon the person with the Intention of so altering the wearer’s appear- ance that he shall not be recognized by those familiar with him, or that he shall be taken for another person.

A person lying in ambush, or concealed be- hind bushes, is not in “disguise,” within the meaning of a statute declaring the county liable in damages to the next of kin of any one mur- dered by persons in disguise. Dale County v. Gunter, 46 Ala. 118, 142.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Twelfth Night, c. 1601]**

'Disguise, I see thou art a wickedness' — Viola, realizing her male disguise as Cesario has made Olivia fall in love with 'him.'

Why: Verbatim quote verified (Act 2, Scene 2). The entry defines disguise as dress intended so the wearer 'shall not be recognized... or shall be taken for another person' — Viola-as-Cesario is the textbook literary instance.

## DISHERISON.

Disinheritance ; depriv- ing one of an inheritance. Obsolete. See Abernethy v. Orton, 42 Or. 437, 71 Pac. 327, 95 Am. St Rep. 774.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:16-17, KJV]**

Then it shall be, when he maketh his sons to inherit that which he hath, that he may not make the son of the beloved firstborn before the son of the hated, which is indeed the firstborn: But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The law forbids disinheriting the true firstborn in favor of a preferred son — the scriptural disherison rule.

## DISHONOR.

In mercantile law and usage. To refuse or decline to accept a bill of exchange, or to refuse or neglect to pay a bill or note at maturity. Shelton v. Bralth- waite, 7 Mees. & W. 436 ; Brewster v. Arnold, 1 Wis. 276.

A negotiable instrument is dishonored when it Is either not paid or not accepted, ac- cording to its tenor, on presentment for that purpose, or without presentment, where that is excused. Civ. Code Cal. § 3141.

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— Notice of dishonor. When a negotiable bill or note is dishonored by nonacceptance on presentment for acceptance, or by non-payment at its maturity, it is the duty of the holder to

§ive immediate notice of such dishonor to the rawer, if it be a bill, and to the indorser, whether it be a bill or note. 2 Daniel, Neg. Inst. { 970.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC §§ 3-502 (dishonor), 3-503 (notice of dishonor)]**

The mercantile-law rule stated here — dishonor on non-payment or non-acceptance according to tenor, with the holder's duty of prompt notice preserving recourse against drawer and indorsers — is carried into modern uniform law by UCC Article 3's dishonor and notice-of-dishonor provisions.

Why: The entry states the 1910-era common-law and California-code rule; the UCC sections are the genuine living codification of the same doctrine. Confident these are the real UCC dishonor provisions. This adds the current...

## DISINCARCERATE.

To set at liberty, to free from prison.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 61:1, KJV]**

The Spirit of the Lord GOD is upon me; because the LORD hath anointed me to preach good tidings unto the meek; he hath sent me to bind up the brokenhearted, to proclaim liberty to the captives, and the opening of the prison to them that are bound;

Why: The verse's commission is precisely to proclaim liberty to captives and open the prison — disincarceration as prophetic office. (Red-letter call: the speaker is the anointed Servant, not the LORD — flag off.)

**[Humanity] — Humanity / Fiction & Film**

**[Frank Darabont, The Shawshank Redemption, 1994]**

(paraphrase) Darabont's film is the modern archetype of liberation from prison — Andy Dufresne's escape and Red's parole from Shawshank. (paraphrase)

Why: The entry: 'To set at liberty, to free from prison.' The film's entire arc is disincarceration, literal and otherwise.

## DISINHERISON.

In the civil law. The act of depriving a forced heir of the inherit- ance which the law gives him.

5e apparatus — Not carried into the 5th edition (1979).

## DISINHERITANCE.

The act by which the owner of an estate deprives a person of the right to Inherit the same, who would otherwise be his heir.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 4:30, KJV]**

Nevertheless what saith the scripture? Cast out the bondwoman and her son: for the son of the

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bondwoman shall not be heir with the son of the freewoman.

Why: Paul cites the scripture that excludes the bondwoman's son from heirship — disinheritance stated as scriptural precedent.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, c. 1606]**

'Nothing will come of nothing. Speak again.' — Lear to Cordelia, in the scene where her refusal to flatter him costs her a third of the kingdom: the archetypal literary disinheritance.

Why: Verbatim quote verified (Act 1, Scene 1, Folger text). The entry defines disinheritance as depriving one who would otherwise be heir; Lear's casting-off of Cordelia is the canonical dramatic instance.

## DISINTER.

To exhume, unbury, take out of the grave. People v. Baumgartner, 135 Cal. 72, 66 Pac. 974.

I

r DISINTERESTED. Not concerned, hi re- spect to possible gain or loss, in the result of the pending proceedings; impartial, not biased or prejudiced. Chase v. Rutland, 47 Vt. 393; In re Big Run, 137 Pa. 590, 20 Atl. 711 ; McGilvery v. Staples, 81 Me. 101, 16 Atl. 404 ; Wolcott v. Ely. 2 Allen (Mass.) 340 ; Hickerson v. Insurance Co., 96 Tenn. i93, 33

S. W. 1041, 32 L. It. A. 172.

— Disinterested witness. One who has no interest in the cause or matter in issue, and who is lawfully competent to testify. Jones v. Larrabee, 47 Me. 474 ; Warren v. Baxter. 48 Me. 195; Appeal of Combs, 105 Pa. 155; State v. Easterlin, 61 S. C. 71, 39 S. E. 250.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 10:34, KJV]**

Then Peter opened his mouth, and said, Of a truth I perceive that God is no respecter of persons:

Why: The scriptural statement of impartiality itself — no respect of persons — which is what 'disinterested' means of a judge or witness. [re-homed from 'DISINTERESTED' to 'DISINTER' (OCR headword / parser-merge artifact)]

## DI8JUNCTIM.

Lat In the civil law. Separately; severally. The opposite of con- junctim, (q. v.) Inst. 2, 20, 8.

. DISJUNCTIVE ALLEGATION. A

statement in a pleading or indictment which expresses or charges a thing alternatively, with the conjunction “or;” for instance, an averment that defendant “murdered or caus- ed to be murdered,” etc., would be of this character.

5e apparatus — Not carried into the 5th edition (1979).

## DISJUNCTIVE TERM.

One which is placed between two contraries, by the affirm- ing of one of which the other is taken away; It is usually expressed by the word “or."

5e apparatus — Carried into the 5th edition (1979).

## DISMES.

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Tenths; tithes, (q. «.) The original form of “dime," the name of thd American coin.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: The LORD's own command concerning the tithe, in His first person ('mine house,' 'prove me').

## DISMISS.

To send away ; to discharge ; to cause to be removed. To dismiss an ac- tion or suit is to send it out of court without any further consideration or hearing. Bos- ley v. Bruner, 24 Miss. 462; Taft v. Northern Transp. Co., 56 N. H. 417 ; Goldsmith v. Smith (C. C.) 21 Fed. 614.

5e apparatus — Carried into the 5th edition (1979).

## DISMISSAL.

The dismissal of an action, suit, motion, etc., is an order or judgment finally disposing of it by sending it out of Court, though without a trial of the issues in- volved. Frederick v. Bank, 106 111. 149 ; Dowling v. Polack, 18 Cal. 027 ; Brackenrldge v. State. 27 Tex. App. 513, 11 S. W. 630, 4

L. R. A. 360.

— Dismissal agreed. A dismissal entered in accordance with the agreement of the parties, amounting to an adjudication of the matters in dispute between them or to a renunciation by the complainant of the ciaima asserted in hu

DISMISSAL ' 37?

pleadings. Root v. Water Supply Co., 46 Kan. 183; 26 Pac. 398; Lindsay v. Alien, 112 Tenn. 637, 82 S. W. 171. See Haldeman v. U. S.. 91

H S. 586, 23 L. .Ed. 433.— Dlsmlasal without prejudice Dismissal of a bill in equity with- out prejudice to the right of the complainant to sue again on the same cause of action. The ef- fect of the words “without prejudice” is to pre- vent the decree of dismissal from operating as t Bar' to a subsequent suit. Lang v. Waring,

Ala, 625, 60 Am. Dec. 533.

5e apparatus — Carried into the 5th edition (1979).

## DISMORTGAGE.

To redeem from mort- gage.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: The jubilee law of redemption — buying back alienated land — is the scriptural root of redeeming property from encumbrance.

## DISORDER.

Turbulent or riotous be- havior ; immoral or indecent conduct. The breach, of . the public decorum and morality.

DISORDERLY, Contrary to the rules of good order and' behavior ; violative of the public peace or good order; turbulent, riot- ous, or Indecent.

—Disorderly conduet. A term of loose and indefinite meaning (except as occasionally de- fined in statutes), but signifying generally any behavior that is contrary to law, and more par- ticularly such as tends to disturb the public peace or decorum, scandalize the community, or shock the public sense of morality. People v. Keeper of State Reformatory, 176 N. Y. 465,

N. E. 884; People v. Davis, 80 App. Div. 448, 80 N. Y. Supp. 872; City of Mt. Sterling v. HoHy, 108 Ky. 621, 57 S. W. 491 ; Pratt v. Brown, 80 Tex. 608, 16 S. W. 443; Kahn v. Macon, 95 Ga. 419, 22 S. B. 641 ; People v. Miller, 38 Hun, 82; Tyrrell v. Jersey City, 25

N. J. Law. 536.— Disorderly house. In crim- inal law. A house the inmates of which behave so badly as to become a nuisance to the neigh- borhood. It has a wide meaning, and includes bawdy houses, common gaming houses, and plac- es of a like character. 1 Btsh. Crim. Law, f 1106; State v. Wilson, 93 N. C. 008; Hickey v. State; 53 Ala. 614; State v. Garity, 46 N.

H. 61; State v. Grosofski, 89 Minn. 343. 94

N. W. 1077; Cheek v. Com.. 79 Ky. 359; State y. McGahan, 48 W. Va. 438, 37 S. E. 573.— Disorderly persons. Such as are dangerous or hurtful to the public peace and welfare by reason of their misconduct or vicious habits, and are therefore amendable to police regulation. The phrase is chiefly used in statutes, and the scope of the term depends on local regulations.

See 4 Bl. Comm. 169. Code Cr. Proc. N. Y. 1903, S 899.

5e apparatus — Carried into the 5th edition (1979).

## DI8PARAGARE.

In old English law.

To bring together those that are unequal, (dispares conferre;) to connect in an Indec- orous and unworthy manner; to connect In marriage those that are unequal in blood and parentage.

5e apparatus — Not carried into the 5th edition (1979).

## DISPARAGATIO.

In old English law. Disparagement. Harcdes maritentur absque Aisparagatlone, heirs shall be married with- out disparagement. Magna Charta, (9 Hen. III.) c. 6.

5e apparatus — Not carried into the 5th edition (1979).

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## DISPARAGATION.

L. Fr. Disparage- ment; the matching an heir, etc., In mar- riage, under his or her degree or condition, or against the rules of decency. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## DISPARAGE.

To connect unequally; to match unsuitably. -> - >

Disparagement, in old English law.

An injury by union or comparison with some person or thing of Inferior rank or excellence.

Marriage without disparagement was mar- riage to one of suitable rank and character. 2 Bl. Comm. 70; Co. Lttti 826. Sbutt v. Car loss, 36 N. C, 232.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 6:14, KJV]**

Be ye not unequally yoked together with unbelievers: for what fellowship hath righteousness with unrighteousness? and what communion hath light with darkness?

Why: The 'unequally yoked' prohibition is the scriptural form of the disparagement concept — the joining of unequals.

## DI8PARAGIUM.

In old Scotch law. Inequality In blood, honor, dignity, or other- wise. Skene de Verb. Sign.

Disparata non debent jnngi. Things unlike ought not to be joined. Jenk. Cent. 24, marg.

5e apparatus — Not carried into the 5th edition (1979).

## DISPARK.

To dissolve a park. Cro. Car. 59. To convert It Into ordinary ground.

DISPATCH, or DESPATCH. A mes- sage, letter, or order sent with speed On af- fairs of state; a telegraphic message.

In maritime law. Diligence, due activi- ty, or proper speed In the discharge of a cargo; the opposite of delay. Terjesen v. Carter, 9 Daly (N. Y.) 193; Moody v. Laths (D. C.) 2 Fed. 607; Sleeper v. Pulg, 22 Fed. Cas. 321.

— Customary dispatch. Such as accords with the rules, customs, and usages of the port where the discharge is made.— Quick dispatch. Speedy discharge of cargo without allowance for the customs or rules of the port or for delay from the crowded state of the harbor or wharf. Mott v. Frost (D. C.) 47 Fed. 82; P.jorkqnist v. Certain Steel Rail Crop Ends (D. C.) 3 Fed. 717 ; Davis v. Wallace, T Fed. Cas. 182.

5e apparatus — Not carried into the 5th edition (1979).

## DISPAUPER.

When a person, by rea- son of his poverty, Is admitted to sue in for- m& pauperis, and afterwards, before the suit be ended, acquires any lands, or person- al estate, or is guilty of

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anything whereby he is liable to have this privilege taken from him, then he loses the right to sue in formA pauperis, and Is said to be dispaupered. Wharton.

Dispensntio eat mnli prohibit! provide relmxatio, ntilitate sen necessitate pen- seta; et eat de Jure domino regi conees- sa, propter impossibllitatem prsevldendi de omnibus particularlbns. A dispensa- tion Is the provident relaxation of a malum prohibitum weighed from utility or necessi- ty; and It is conceded by law to the king on account of the impossibility of foreknowl- edge concerning all particulars. 10 Coke, 88.

Dispensatio eat minus, quod mlnerat jus commune. A dispensation is a wound, which wounds common law. Dav. Ir. K. B. 69.

5e apparatus — Carried into the 5th edition (1979).

## DISPENSATION.

An exemption from some laws; a permission to do something forbidden ; an allowance to omit something commanded ; the canonistlc name for a license. Wharton; Baldwin v. Taylor, 166

Pa. 507, 31 Atl. 250; Viele v. Insurance Co., 26 Iowa, 56, 96 Am. Dec. 83.

A relaxation of law for the benefit or ad- vantage of an individual. In the United States, no power exists, except in the legislature, to dispense with law ; and then it is not so much a dispensation as a change of the law. Bouvier.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 12:4, KJV]**

How he entered into the house of God, and did eat the shewbread, which was not lawful for him to eat, neither for them which were with him, but only for the priests?

Why: Jesus cites David's eating of the shewbread — a thing 'not lawful' — as the precedent for dispensation, permission overriding the letter of the law.

**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1400]**

(paraphrase) Chaucer's Pardoner rides with papal pardons — dispensations and indulgences — which he hawks for profit: the literary archetype of the licensed exemption the entry defines. (paraphrase)

Why: The entry: 'An exemption from some laws; a permission to do something forbidden... the canonistic name for a license.' The Pardoner's entire trade is dispensations; a genuine literary illumination.

## DISPERSON ARE.

To scandalize or dis- parage. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## DISPLACE.

This term, as used In ship- ping articles, means “disrate,” and does not import authority of the master to discharge a second mate, notwithstanding a usage In the whaling trade never to disrate an officer to a seaman. Potter v. Smith, 103 Mass. 68.

5e apparatus — Carried into the 5th edition (1979).

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## DISPONE.

In Scotch law. To grant or convey. A technical word essential to the conveyance of heritable property, and for which no equivalent Is accepted, however clear may be the meaning of the narty. Paters. Comp.

5e apparatus — Not carried into the 5th edition (1979).

## DXSPONO.

Lat To dispose of, grant, or convey. Disponet, he grants or alienates. Jus disponcndi, the right of disposition, i. of transferring the title to property.

5e apparatus — Not carried into the 5th edition (1979).

## DISPOSE.

To alienate or direct the own- ership of property, as disposition by will. Used also of the determination of suits. Called a word of large extent. Koerner v. Wilkinson, 96 Mo. App. 510, 70 S. W. 509; Love v. Pamplin (C. C.) 21 Fed. 760; U.

S. v. Hacker (D. C.) 73 Fed. 294; Benz v. Fabian, 54 N. J. Kq. 615, 35 Atl. 760; El- ston v. Schilling, 42 N. Y. 79; Beard v. Knox, 5 Cal. 256, 63 Am. Dec. 125.

5e apparatus — Not carried into the 5th edition (1979).

## DISPOSABLE PORTION.

That portion of a man’s property which he is free to dispose of by will to beneficiaries other than his wife and children. By the ancient com- mon law, this amounted to one-third of his estate if he was survived by both wife and children. 2 Bl. Comm. 492; Hopkins v. Wright, 17 Tex. 36. In the civil law (by the Lex Falcidia) it amounted to three-fourths. Mackeld. Korn. Law, §S 708, 771.

5e apparatus — Carried into the 5th edition (1979).

## DISPOSING CAPACITY OR MIND.

These are alternative or synonymous phrases in the law of wills for “sound mind,” and "testamentary capacity,” ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## DISPOSITION.

In Scotch law. A deed of alienation by which a right to property is conveyed. Bell.

5e apparatus — Carried into the 5th edition (1979).

## DISPOSITIVE FACTS.

Such as pro- duce or bring about the origination, transfer, or extinction of rights. They are either in- vestitive, those by means of which a right comes into existence, divestitive, those through which It terminates, or translative, those through which it passes from one per- son to another.

5e apparatus — Carried into the 5th edition (1979).

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## DISPOSSESS PROCEEDINGS.

Sum- mary process by a landlord to oust the ten- ant and regain possession of the premises for non-payment of rent or other breach of the conditions of the lease. Of local origin and colloquial use in New York.

5e apparatus — Carried into the 5th edition (1979).

## DISPOSSESSION.

Ouster ; a wrong that carries with it the amotion of posses- sion. An act whereby the wrong-doer gets the actual occupation of the land or heredita- ment. It includes abatement, intrusion, dis- seisin, discontinuance, deforcement. 3 Bl. Comm. 167.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Kings 21:15, KJV]**

And it came to pass, when Jezebel heard that Naboth was stoned, and was dead, that Jezebel said to Ahab, Arise, take possession of the vineyard of Naboth the Jezreelite, which he refused to give thee for money: for Naboth is not alive, but dead.

Why: The scriptural case-study of wrongful dispossession — possession seized by wrong after the owner's death.

## DISPROVE.

To refute; to prove to be false or erroneous; not necessarily by mere denial, but by affirmative evidence to the contrary. Irsch v. Irsch, 12 N. Y. Civ. Proc.

K. 182.

5e apparatus — Carried into the 5th edition (1979).

## DISPUNISHABLE.

In old English law. Not answerable. Co. Lift. 27b, 53. 1 Steph. Comm. 245. Not punishable. "This mur- der is dispunishable.” 1 Leon. 270.

5e apparatus — Not carried into the 5th edition (1979).

## DISPUTATIO FORI.

In the civil law. Discussion or argument before a court. Mackeld. Rom. Law, | 38 ; Dig. 1, 2, 2, 5.

5e apparatus — Not carried into the 5th edition (1979).

## DISPUTE.

A conflict or controversy ; ■ conflict of claims or rights; an assertion of a right, claim, or demand on one side, met by contrary claims or allegations on the other. Slaven v. Wheeler, 58 Tex. 25 ; Keith v. Levi (C. C.) 2 Fed. 745; Ft. Pitt Gas Co. v. Borough of Sewlckley, 198 Pa. 201, 47 Atl. 957; Railroad Co. v. Clark, 92 Fed. 968, 35 O. C. A. 120.

— Disputable presumption. A presumption of law, which may be rebutted or disproved. See Presumptions.— Matter in dispute. The subject of litigation ; the matter for which a suit is brought and upon which issue is joined, and in relation to which jurors are called and

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witnesses examined. Lee v. Watson, 1 Wall. 339, 17 L. Ed. 557 ; Smith v. Adams, 130 U. S. 167, 9 Sup. Ct 566, 32 L. Ed. 985.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 18:18, KJV]**

The lot causeth contentions to cease, and parteth between the mighty.

Why: The proverb states the scriptural mechanism for settling disputes — the lot parting the mighty — bearing directly on controversy and its resolution.

## DISQUALIFY.

To divest or deprive of qualifications; to incapacitate; to render in- eligible or unfit; as, In speaking of the “dis- qualification” of a Judge by reason of his interest in the case, of a juror by reason of his holding a fixed preconceived opinion, or of a candidate for public office by reason of non-residence, lack of statutory age, pre- vious commission of crime, etc. In re Tyers’ Estate, 41 Misc. Rep. 378, 84 N. Y. Supp. 934; In re Maguire, 57 Cal. 606, 40 Am. Rep. 125; Carroll v. Green, 148 Ind. 362, 47 N. E. 223; In re Nevitt, 117 Fed. 448, 54 C. C. A. 622; State v. Blair, 53 Vt 28.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 1:17, KJV]**

Ye shall not respect persons in judgment; but ye shall hear the small as well as the great; ye shall not be afraid of the face of man; for the judgment is God's: and the cause that is too hard for you, bring it unto me, and I will hear it.

Why: The command against respecting persons in judgment is the scriptural ground of disqualification for interest or bias.

## DISRATE.

In maritime law. To de- prive a seaman or petty officer of his "rat- ing” or rank; to reduce to a lower rate or rank.

DI8RATIONARE, or DERATION ARE.

To Justify; to clear one’s self of a fault; to traverse an Indictment ; to disprove. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## DIS8ASINA.

In old Scotch law. Dis- seisin ; dispossession. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## DISSECTION.

The anatomical examina- tion of a dead body by cutting Into pieces or exscinding one or more parts or organs. Wehle v. Accident Ass'n, 11 Misc. Rep. 36, 31 N. Y. Supp. 863; Sudduth v. Insurance Co. (C. C.) 106 Fed. 822; Rhodes, v. Brandt, 21 Hun (N. Y.) 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Robert Wise, The Body Snatcher, 1945]**

(paraphrase) Wise's film dramatizes the Burke-and-Hare trade — grave-robbers supplying corpses to anatomists for dissection — the historical world behind the entry's 'anatomical examination of a dead body.' (paraphrase)

Why: The entry defines dissection as anatomical examination of a dead body. The film is genuinely about the procurement of bodies for that purpose.

## DISSEISE.

To dispossess; to deprive.

5e apparatus — Not carried into the 5th edition (1979).

## DISSEISEE.

One who is wrongfully put ■out of possession of his lands; one who Is disseised.

5e apparatus — Not carried into the 5th edition (1979).

## DISSEISIN.

Dispossession; a depriva- tion of possession; a privation of seisin; a usurpation of the right of seisin and posses- sion, and an exercise of such powers and privileges of ownership as to keep out or dis- place him to whom these rightfully belong. 3 Washb. Real Prop. 125; Probst v. Trustees, 129 U. S. 182, 9 Sup. Ct 263, 32 L. Ed. 642; Bond v. O'Gara, 177 Mass. 139, 58

N. E. 275, 83 Am. St. Rep. 265; Moody v. Fleming, 4 Ga. 115, 48 Am. Dec. 210; Clapp v. Bromagham, 9 Cow. (N. Y.) 553; Wash- hum v. Cutter, 17 Minn. 368 (Gil. 335).

It Is a wrongful putting out of him that Is seised of the freehold, not, as In abatement or intrusion, a wrongful entry, where the possession was vacant, but an attack upon him who Is in actual possession, and turning him out. It Is an ouster from a freehold In deed, as abatement and Intrusion are ousters In law. 8 Steph. Comm. 386.

When one man invades the possession of an- other, and by force or surprise turns him out of the occupation of his lands, this is termed a "disseisin," being a deprivation of that actual seisin or corporal possession of the freehold which the tenant before enjoyed. In other words, a disseisin is said to be when one enters intending to usurp the possession, and to oust another from the freehold. To constitute an entry a disseisin, there must be an ouster of the freehold, either by taking the profits or by claiming the inheritance. Brown.

According to the modern authorities, there seems to be no legal difference between the words "seisin" and "possession," although there is a difference between the words "disseisin" and "dispossession;" the former meaning an estate gained by wrong and injury, whereas the latter may be by right or by wrong ; the former denoting an ouster of the disseisee, or some act equivalent to it, whereas by the latter no such act is implied. Slater v. Rawson, 6 Mete. (Mass.) 439.

Equitable disseisin Is where a person is wrongfully deprived of the equitable seisin of land, e. g., of the rents and profits. 2 Meriv. 171; 2 Jac. A W. 166.

Disseisin by election Is where a person al- leges or admits himself to be disseised when he

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has not really been so.

Dlsselainam satis faolt, qni nti bob permittit possessorem, vel minus com- mode, lieet omnlno non cxpellat. Co.

Litt. 331. He makes disseisin enough who does not permit the possessor to enjoy, or makes his enjoyment less beneficial, although he does not expel him altogether.

5e apparatus — Not carried into the 5th edition (1979).

## DISSEI8ITRIX.

A female disseisor; a dlsselsoress. Fleta, lib. 4, c. 12, | 4.

5e apparatus — Not carried into the 5th edition (1979).

## DISSEISOR.

One who puts another out of the possession of his lands wrongfully.

5e apparatus — Not carried into the 5th edition (1979).

## DISSEISORESS.

A woman who unlaw- fully puts another out of his land.

5e apparatus — Not carried into the 5th edition (1979).

## DI8SENSUS.

Lat In the civil law. The mutual agreement of the parties to a simple contract obligation that it shall be dissolved or annulled; technically, an un- doing of the consensus which created the obligation. Mackeld. Rom. Law, f 641.

5e apparatus — Not carried into the 5th edition (1979).

## DISSENT.

Contrariety of opinion; re- fusal to agree with something already stated or adjudged or to an act previously per- formed.

The term is most commonly used in Amer- ican law to denote the explicit disagreement of one or more judges of a court with the de- cision passed by the majority upon a case before them. In such event, the non-concur- ring judge Is reported as “dissenting.”

—Dissenting opinion. The opinion in which a judge announces his dissent from the conclu- sions held by the majority of the court, and expounds his own views.

5e apparatus — Not carried into the 5th edition (1979).

## DISSENTERS.

Protestant seceders from the established church of England. They are of many denominations, principally Presby- terians, Independents, Methodists, and Bap- tists ; but, as to church government, the Baptists are Independents.

5e apparatus — Not carried into the 5th edition (1979).

## DISSIGNARE.

In old law. To break open a seal. Whlshaw.

Dlasimilinm disaimilis est ratio. Co.

Litt. 191. Of dissimllars the rule Is dissim- ilar.

Dissimulations tollitnr injuria. An

injury Is extinguished by the forgiveness or reconcilement of the party Injured. Ersk. Inst 4, 4, 108.

5e apparatus — Not carried into the 5th edition (1979).

## DISSOLUTION.

In contracts. The

dissolution of a contract Is the cancellation or abrogation of it by the parties themselves, with the effect of annulling the binding force of the agreement, and restoring each party to his original rights. In this sense it Is frequently used In the phrase "dissolution of a partnership.” Wlliston v. Camp, 9 Mont. 88, 22 Pac. 501.

Of corporations. The dissolution of a corporation Is the termination of Its exlstence as a body politic. This may take place in several ways; as by act of the legislature, where that is constitutional ; by surrender or forfeiture of its charter ; by expiration of its charter by lapse of time ; by proceedings for winding it up under the law; by loss of all its members or their reduction below the statutory limit. Matthews v. Bank, 60 S.

C. 183, 38 S. E. 437; Lyons-Thomas Hard- ware Co. v. Perry Stove Mfg. Co., 86 Tex. 143, 24 S. W. 16, 22 L. R. A. 802; Theis v. Gaslight Co., 34 Wash. 23, 74 Pac. 1004.

In practice. The act of rendering a legal proceeding null, abrogating or revoking it; unloosing its constraining force ; as when an injunction is dissolved by the court. Jones v. Hill, 6 N. C. 131.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

The constitutional qualification on legislative dissolution of a corporation — 'where that is constitutional' — rests on the rule that a corporate charter is a contract within the Contract Clause (U.S. Const. art. I, § 10), limiting the legislature's power to dissolve or impair it.

Why: Scoped to the corporations paragraph only. The entry names the constitutional limit without identifying it; Dartmouth College is the canonical authority for that limit. Confident this landmark citation is real. Not ex...

**[Humanity] — Humanity / Fiction & Film**

**[Hilary Mantel, Wolf Hall, 2009]**

(paraphrase) Mantel's novel follows Thomas Cromwell through Henry VIII's dissolution of the monasteries — the great historical instance of corporate bodies being terminated, the entry's 'dissolution of corporations' sense. (paraphrase)

Why: The entry covers dissolution of contracts, corporations, and Parliament; the dissolution of the monasteries is the archetypal English instance of the corporate sense.

## DISSOLUTION OF PARLIAMENT.

The crown may dissolve parliament either in person or by proclamation; the dissolution is

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usually by proclamation, after a prorogation. No parliament may last for a longer period than seven years. Septennial Act, 1 Geo. I. c. 38. Under 6 Anne, c. 37, upon a demise of the crown, parliament became ipso facto dissolved six months afterwards, but under the Reform Act, 1867, its continuance is now nowise affected by such demise. May, Pari. Pr. (6th Ed.) 48. Brown.

5e apparatus — Carried into the 5th edition (1979).

## DISSOLVE.

To terminate; abrogate; cancel; annul; disintegrate. To release or unloose the binding force of anything. As to “dissolve a corporation,” to “dissolve an injunction." See Dissolution.

5e apparatus — Carried into the 5th edition (1979).

## DISSOLVING BOND.

A bond given to obtain the dissolution of a legal writ or process, particularly an attachment or an injunction, and conditioned to indemnify the opposite party or to abide the judgment to be given. See Sanger v. Hibbard, 2 Xnd.

T. 647, 53 S. W. 330.

5e apparatus — Carried into the 5th edition (1979).

## DISSUADE.

In criminal law. To ad- vise and procure a person not to do an act.

To dissuade a witness from giving evidence against a person Indicted is an indictable of- fense at common law. Hawk. P. C. b. 1, c. 21, I 15.

5e apparatus — Carried into the 5th edition (1979).

## DISTILL.

To subject to a process of distillation, i. e., vaporizing the more vola- tile parts of a substance and then condensiug the vapor so formed. In law, the term is chiefly used In connection with the manufac- ture of intoxicating liquors.

—Distilled liquor or distilled spirits. A

term which includes all potable alcoholic liq- uors obtained by the process of distillation, (such as whisky, brandy, rum. and gin) but excludes fermented and malt liquors, such as wine and beer. U. S. Rev. St. $$ 3248, 3289, 3299 (U. S. Comp. St. 1901, pp. 2107. 2132, 2153) ; U. S. v. Anthony, 14 Blatchf. 92, Fed. Cas. No. 14,460; State v. Williamson, 21 Mo. 490; Boyd v. U. S., 3 Fed. Cas. 1098; Sarlls v. U. S., 152 U. S. 570, 14 Sup. Ct. 720, 38 L. Ed. 556.— Distiller. Every person who produces distilled spirits, of who brews or makes mash, wort, or wash, fit for distilla- tion or for the production of spirits, or who, by any process of evapori nation, separates al- coholic spirit from any fermented substance, or who. making or keeping mash, wort, or wash, has also in his possession or use a still, shall be regarded as a distiller. Rev. St U,

S. $ 3247 (U. S. Comp. St. 1901, p. 21071. See Johnson v. State, 44 Ala. 416; U. S. v. Frerichs, 25 Fed. Cas. 1218; U. S. v. Wittig, 28 Fed. Cas. 745; U. S. v. Ridenour (D. C.) 119

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Fed. 411.— Distillery. The strict mean- ing of “distillery” is a place or building where alcoholic liquors are distilled or manufactured ; not every building where the process of dis- tillation is used. Atlantic Dock Co. v. Libby, 45 N. Y. 499; U. S. v. Blaisdell, 24 Fed. Caa. 1162.

5e apparatus — Not carried into the 5th edition (1979).

## DISTINCTE ET AFERTE.

In old Eng- lish practice. Distinctly and openly. Form- al words In writs of error, referring to the return required to be made to them. Reg. Orig. 17.

Dlstingrnends sunt tempora. The time is to be considered. 1 Coke, 16a; Bloss "v. Tobey, 2 Pick. (Mass.) 327; Gwens v. Mis- sionary Society, 14 N. Y. 380, 393, 67 Am. Dec. 160.

Dlatinguenda sunt tempora; aliud est faeere, aliud perficere. Times must be distinguished; it is one thing to do, another to perfect 3 Leon. 243 ; Branch, Princ.

Distinguenda sunt tempora; distingue tempora et conoordabis leges. Times are to be distinguished; distinguish times, and you will harmonize laws. 1 Coke, 24. A maxim applied to the construction of stat- utes.

5e apparatus — Not carried into the 5th edition (1979).

## DISTINGUISH.

To point out an essen- tial difference; to prove a cnee cited as ap- plicable, Inapplicable.

5e apparatus — Carried into the 5th edition (1979).

## DISTRACTED PERSON.

A term used in the statutes of Illinois (Rev. Laws, 111. 1833, p. 332) and New Hampshire (Dig. N.

H. Laws, 1830, p. 339) to express a state of insanity. Snyder v. Snyder, 142 111. 60, 31

N. E. 303.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

(paraphrase) Shakespeare's Ophelia, 'distracted' with grief after her father's death — singing, flower-strewing, mad — is the literary archetype of the 'state of insanity' the Illinois and New Hampshire statutes meant by the term. (paraphrase)

Why: The entry is a statutory term for insanity. 'Distracted' is the period word for mad; Ophelia's distraction is its most famous dramatic instance.

## DISTRACTIO.

Lat In the civil law. A separation or division into parts; also an alienation or sale. Sometimes applied to the act of a guardian in appropriating the prop- erty of his ward.

— Diatractlo bonorum. The sale at retail of the property of an insolvent estate, under the management of a curator appointed in the in- terest of the creditors, and for the purpose of realizing as much as possible for the satisfac- tion of their claim. Mackeld. Rom. Law, S 524.

—Diatractlo pigmoris. The sale of a thing pledged or hypothecated, by the creditor or pledgee, to obtain satisfaction of his claim on the debtor's failure to pay or redeem. Idem. { 348.

5e apparatus — Not carried into the 5th edition (1979).

## DISTRAHERE.

To sell; to draw apart; to dissolve a contract; to divorce. Calvin. <

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DISTRAIN.

To take as a pledge prop- erty of another, and keep the same until he performs his obligation or until the property is replevied by the sheriff. It was used to secure an appearance in court, payment of rent, performance of services, etc. 3 Bl. Comm. 231; Fitzh. Nat. Brev. 32, B, C, 223. Boyd v. Howden, 3 Daly (N. Y.) 457; Byers v. Ferguson, 41 Or. 77, 68 Pac. 5.

Distress Is now generally resorted to for the purpose of enforcing the payment of rent, taxes, or other duties.

DISTRAINER, or DISTRAINOR. He

who seizes a distress.

5e apparatus — Carried into the 5th edition (1979).

## DISTRAINT.

Seizure; the act of dis- training or making a distress.

5e apparatus — Carried into the 5th edition (1979).

## DISTRESS.

The taking a personal chat- tel out of the possession of a wrong-doer into the custody of the party Injured, to procure a satisfaction for a wrong committed; as for non-payment of rent, or injury done by cat- tle. 3 Bl. Comm. 6, 7; Co. Lltt. 47; Emlg v. Cunningham, 62 Md. 460; Hard v. Near- ing, 44 Barb. (N. Y.) 488; Owen v. Boyle. 22 Me. 61; Evans v. Lincoln Co., 204 Pa. 448, 54 Atl. 321. The taking of beasts or other personal property by way of pledge, to en- force the performance of something due from the party distrained upon. 3 Bl. Comm. 231. The taking of a defendant's goods. In order to compel an appearance in court Id. 280; 3 Steph. Comm. 361, 363. The seizure of personal property to enforce payment of taxes, to be followed by Its public sale if the taxes are not voluntarily paid. Mar- shall v. Wadsworth, 64 N. H. 386, 10 Atl. 685. Also the thing taken by distraining, that which is seized to procnre satisfaction. And in old Scotch law, a pledge taken by the sheriff from those attending fairs or markets, to secure their good behavior, and returnable to them at the close of the fair or market if they had been guilty of no wrong.

—-Distress infinite. One that has no bounds with regard to its quantity, and may be re- peated from time to time, until the stubborn- ness of the party is conquered. Such are dis-

tresses for fealty or suit of court, and for com- pelling jurors to attend. 3 Bl. Comm. 231.— Distress warrant. A writ authorizing an of- ficer to made a distraint; particularly, a writ authorizing the levy of a distress on the chat- tels of a tenant for non-payment of rent. Bai- leyville v. Lowell, 20 Me. l8l ; Bagwell v. Jami- son. Cbeves (S. C.) 252.— Grand distress, writ of. A writ formerly issued in the real action of quare impedit. when no appearance had been entered after the attachment; it com- manded the sheriff to distrain the defendant’s lands and chattels in order to compel appear- ance. It is no longer used, 23 & 24 Viet. c. 126. | 28, having abolished the action of quare im- pedit, and substituted for it the procedure in an ordinary action. Wharton. — Second distress. A supplementary distress for rent in arrear, allowed by law in some cases, where the goods seized under the first distress are not of suffi- cient value to satisfy the claim.

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**[Scripture] — Scripture**

**[Deuteronomy 24:10-11, KJV]**

When thou dost lend thy brother any thing, thou shalt not go into his house to fetch his pledge. Thou shalt stand abroad, and the man to whom thou dost lend shall bring out the pledge abroad unto thee.

Why: The scriptural law of pledge-taking — the direct ancestor of distress procedure, regulating how a creditor may seize the pledge.

## DISTRIBUTEE.

An heir; a person en- titled to share in the distribution of an es- tate. This term is admissible to denote one of the persons who are entitled, under the statute of distributions, to the personal es- tate of one who Is dead intestate. Henry v. Henry, 31 N. C. 278 ; Kitchen v. Southern Ry., 68 S. C. 554, 48 S. E. 4.

5e apparatus — Not carried into the 5th edition (1979).

## DISTRIBUTION.

In practice. The ap- portionment and division, under authority of a court, of the remainder of the estate of an Intestate, after payment of the debts and charges, among those who are legally entitled to share In the same. Rogers v. Gll- lett, 56 Iowa, 266, 8 N. W. 204 ; William HU1 Co. v. Lawler, 116 Cal. 359, 48 Pac. 323; In re Creighton, 12 Neb. 280, 11 N. W. 313 ; Thomson v. Tracy, 60 N. Y. ISO.

—Statute of distribution!. A law prescrib- ing the manner of the distribution of the es- tate of an intestate among his heirs or rela- tives. Such statutes exist in all the states.

5e apparatus — Carried into the 5th edition (1979).

## DISTRIBUTIVE.

Exercising or accom- plishing distribution; apportioning, dividing, and assigning in separate items or shares.

— Distributive finding of the issue. The

jury are bound to give their verdict for that party who, upon the evidence, appears to them to have succeeded in establishing his side of the issue. But there are cases in which an

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issue may be found distributively, i. e., in part for plaintiff, and in part for defendant. Thus, in an action for goods sold and work done, if the defendant pleaded that he never was indebted, on which issue was joined, a verdict might be found for the plaintiff as to the goods, and for the defendant as to the work. Steph. PI. (7th Ed.) 77 d. — Distributive Justice. See Jus- tice.— Distributive share. The share or por- tion which a given heir receives on the legal distribution of an intestate estate. People v. Beckwith, 10 N. Y. St. Itep. 97 ; Page v. Rives, 18 Fed. Cas. 992. Sometimes, by an exten- sion of meaning, the share or portion assigned to a given person on the distribution of any estate or fund, as, under an assignment for creditors or under insolvency proceedings.

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## DISTRICT.

One of the portions into which an entire state or country may be di- vided, for judicial, political, or administra- tive purposes.

The United States are divided into judicial districts, in each of which Is established a district court. They are also divided Into election districts, collection districts, etc.

The circuit or territory within which a per- son may be compelled to appear. Cowell. Circuit of authority ; province. Enc. Loud.

— District attorney. The prosecuting officer of the United States government in each of the federal judicial districts. Also, under the state governments, the prosecuting officer who repre- sents the state in each of its judicial districts. In some states, where the territory is divided, for judicial purposes,, into sections called by some other name than “districts,” the same offi- cer is denominated “county attorney” or “state’s attorney.” Smith v. Scranton, 3 C. P. Rep. (Pa.) 84 ; State v. Salge, 2 Nev, 324.— District clerk. The clerk of a district court of either a state or the United .States.— Dis- trict courts. Courts of the United States, each having territorial jurisdiction over a diitrict, which may include a whole state or only part of it. Each of these courts is presided over by one judge, who must reside within the district. These courts have original jurisdic- tion over all admiralty and maritime causes and all proceedings in bankruptcy, and over all penal and criminal matters cognizable under the lawa of the United States, exclusive juris- diction over which is not vested either in the supreme or circuit courts. Also inferior courts of record in California, Connecticut, Iowa. Kansas, Louisiana, Minnesota, Nebraska, Neva- da, Ohio, and Texas are also called “district courts.” Their jurisdiction is for the most part similar to that of county courts, (g. v.)— District judge. The judge of a United States district court ; also, in some states, the judge of a district court of the state.— District par- ishes. Ecclesiastical divisions of parishes in England, for all purposes of worship, and for the celebration of marriages, christenings, church- ings, and burials, formed at the instance of the queen’s commissioners for building new church- es. See 3 Steph. Comm. 744.— District regis- try. By the English judicature act, 1873, { 60, it is provided that to facilitate proceedings in country districts the crown may, from time to time, by order in council, create district reg- istries, and appoint district registrars for the purpose of issuing writs of summons, and for other purposes. Docilments

sealed in any such district registry shall be received in evidence without further proof, (section 61;) and the district registrars may administer oaths or do other things as provided by rules or a special order of the court, (section 62.) Power, how- ever, is given to a judge to remove proceedings from a district registry to the office of the high court. Section 65. By order in council of 12th of August, 1875, a number of district registries lmve been established in the places mentioned in thnt order; and the prothonotaries in Liv- erpool, Manchester, and Preston, the district registrar 'of the court of admiralty at Liver- pool, and the county court registrars in the oth- er places named, have been appointed district registrars. Wharton.

As to “Fire,” “Judicial,” “Land," “Levee,” “Mineral," “Mining,” “Road,” "School,” and “Taxing” districts, see those titles.

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## DISTRICT OF COLUMBIA.

A terri- tory situated on the Potomac river, and being the seat of government of the United States. It was originally ten miles square, and was composed of portions of Maryland and Vir- ginia ceded by those states to the United States; but in 1840 the tract coming from Virginia was retroceded. Legally It is nei- ther a state nor a territory, but is made sub- ject, by the constitution, to the exclusive ju- risdiction of congress.

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 17 — exclusive congressional legislation over the seat of government]**

The entry's constitutional claim — that the District is neither state nor territory but subject to the exclusive jurisdiction of Congress — rests on the District Clause, giving Congress power 'to exercise exclusive Legislation' over the seat of government.

Why: The entry asserts the constitutional consequence without naming its source; the clause is the genuine, specific, real authority behind it. Confident in this citation. Not a restatement — it identifies the constitution...

## DISTRICTIO.

Lat. A distress; a dis- traint. Cowell.

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## DISTRINGAS.

In English practice. A writ directed to the sheriff of the county in which a defendant resides, or has any goods or chattels, commanding him to distrain up- on the goods and chattels of the defendant for forty shillings, in order to compel his ap- pearance. 3 Steph. Comm. 567. This writ issues in cases where it is found impractica- ble to get at the defendant personally, so as to serve a summons upon him. Id.

A distringas is also used in equity, as the first process to compel the appearance of a

corporation aggregate. St. 11 Geo. IV. and

1 Wm. IV. c. 36.

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A form of execution in the actions of deti- nue and assise of nuisance. Brooke, Abr. pi. 26; Barnet v. Ihrle, 1 Rawle (Pa.) 44.

—Distringas jnratores. A writ command- ing the sheriff to have the bodies of the jurors, or to distrain them by their lands and goods, that they may appear upon the day appointed. 3 Bl. Comm. 354. It issues at the same time with the venire, though in theory afterwards, founded on the supposed neglect of the juror to attend. 3 Steph. Comm. 590. — Distringas nuper vice oomitem. A writ to distrain the goods of one who lately filled the office of sheriff, to compel him to do some act which he ought to have done before leaving the office; as to bring in the body of a defendant, or to sell goods attached under a fi. fa.— Distringas sloe oomitem. A writ of distringas, directed to the coroner, may be issued against a sheriff if he neglects to execute a writ of venditioni exponas. Arch. Pr. 584.

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## DISTRINGERE.

In feudal and old Eng- lish law. To distrain; to coerce or compel. Spelman ; Calvin.

DISTURBANCE. 1. Any act causing annoyance, disquiet, agitation, or derange- ment to another, or interrupting his peace, or interfering with him in the pursuit of a lawful and appropriate occupation. Richard- son v. State, 5 Tex. App. 472 ; State v. Stuth, 11 Wash. 423, 39 Pac. 665 ; George v. George, 47 N. H. 33; Varney v. French, 19 N. H. 233.

2. A wrong done to an incorporeal heredit- ament by hindering or disquieting the owner in the enjoyment of it Finch, 187; 8 BL Comm. 235.

— Disturbance of common. The doing any act by which the right of another to his com- mon is incommoded or diminished ; as where one who has no right of common puts his cat- tle into the land, or where one who has a right of common puts in cattle which are not com- monable, or surcharges the common ; or where the owner of the land, or other peraon, incloses or otherwise obstructs it. 3 Bl. Comm. 237- 241 ; 3 Steph. Comm. 511, 512.— Disturbance of franchise. The disturbing or incommoding a man in the lawful exercise of bis franchise, whereby the profits arising from it are dimin- ished. 3 Bl. Comm. 236 ; 3 Steph. Comm. 510;

2 Crabb, Real Prop. p. 1074, | 2472o.— Dis- turbance of patronage. The hindrance or obstruction of a patron from presenting his clerk to a benefice. 3 Bl. Comm. 242 ; 3 Steph. Comm. 514.— Disturbance of public wor- ship. Any acts or conduct wnich interfere with the peace and good order of an assembly of persons lawfully met together for religious exercises. Lancaster v. State, 53 Ala. 398, 25 Am. Rep. 625; Brown v. State, 46 Ala. 183; McElroy v. State, 25 Tex. 507.— Disturbance of tenure. In the law of tenure, disturbance is where a stranger, by menaces, force, persua- sion, or otherwise, causes a tenant to leave his tenancy; this disturbance of tenure is an in- jury to the lord for which an action will lie.

3 Steph. Comm. 414.— Disturbance of the peace. Interruption of the peace, quiet, and good order of n neighborhood or community, particularly by unnecessary and distracting nois- es. City of St. Charles v. Meyer, 58 Mo. 89; Yokum v. State (Tex. Cr. Ann.) 21 S. W. 191.

—Disturbance of ways. This happens where a person who bas a right of way over another's nound by grant or prescription is obstructed by inclosures or other obstacles, or by plowing across it, by which means he cannot enjoy his right of way, or at least in so commodious a manner as he might have done. 3 Bl. Comm. 241.

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## DISTURBER.

If a bishop refuse or neg- lect to examine or admit a patron’s clerk, without reason assigned or notice given, he is styled a “disturber" by the law, and shall not have any title to present by lapse; for no man shall take advantage of his own wrong. 2 Bl. Comm. 278.

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## DITCH.

The words “ditch" aud "drain” have no technical or exact meaning. They both may mean a hollow space in the ground, natural or artificial, where water is 'collected or passes off. Goldthwait v. East Bridge- water, 5 Gray (Mass.) 04 ; Wetmore v. Flake, 15 R. I. 354, 5 Atl. 375.

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## DITE8 OUSTER.

L. Fr. Say over. The form of awarding a respondeat ouster, in the Year Books, M. 6 Edw. III. 49.

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## DITTAY.

In Scotch law. A technical term in civil law, signifying the matter of charge or ground of indictment against a person accused of crime. Taking up dittay is obtaining informations and presentments of crime in order to trial. Skene, de Verb. Sign.; Bell.

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## DIVERS.

Various, several, sundry; a collective term grouping a number of un- specified persons, . objects, or acts. Com. v. Butts, 124 Mass. 452; State v. Hodgson, 66 Vt 134, 28 Atl. 1089; Munro v. Alaire, 2 Caines (N. Y.) 326.

5e apparatus — Not carried into the 5th edition (1979).

## DIVERSION.

A turning aside or alter- ing the natural course of a tiling. The term is chiefly applied to the unauthorized chang- ing the course of a water-course to the prej- udice of a lower proprietor. Merritt v. Park- er, 1 N. J. I.aw, 460; Parker v. Griswold, 17 Conn. 299, 42 Am. Dec. 739.

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## DIVERS ITE DES COURTS.

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A treatise on courts and their Jurisdiction, written In French in the reign of Edward III. as is supposed, and by some attributed to Fltzher- bert It was first printed in 1525, and again in 1534. Crabb, Eng. Daw, 330, 483.

5e apparatus — Not carried into the 5th edition (1979).

## DIVERSITY.

In criminal pleading. A plea by the prisoner in bar of execution, al- leging that he is not the same who was at- tainted, upon which a jury is immediately impaneled to try the collateral issue thus raised, viz., the identity of the person, and not whether he is guilty or Innocent, for that has been already decided. 4 Bl. Comm. 396.

5e apparatus — Not carried into the 5th edition (1979).

## DIVERSO INTUITU.

Lat. With a dif- ferent view, purpose, or design ; in a differ- ent view or point of view; by a different

course or process. 1 W. Bl. 89; 4 Kent Comm. 211, note.

5e apparatus — Not carried into the 5th edition (1979).

## DIVERSORIUM.

In old English law. A lodging or inn. Townsh. Pl. 38.

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## DIVERT.

To turn aside ; to turn out of the way ; to alter the course of things. Usu- ally applied to water-courses. Ang. Water- Courses, S 97 et seq. Sometimes to roads. 8 East, 394.

5e apparatus — Not carried into the 5th edition (1979).

## DIVES.

In the practice of the English chancery division, “dives costs” are costs on the ordinary scale, as opposed to the costs formerly allowed to a successful pauper su- ing or defending in formd pauperis, and which consisted only of his costs out of pocket Daulell, Ch. Pr. 43.

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## DIVEST.

Equivalent to devest, (q. v.)

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## DIVESTITIVE FACT.

A fact by means of which a right is divested, terminated, or extinguished; as the right of a tenant ter- minates with the expiration of his lease, and the right of a creditor is at an end when his debt has been paid. Holl. Jur. 132.

Divide et Imp era, earn radix et vertex, imperii in obedientlnm consensu rata snnt. 4 Inst. 35. Divide and govern, since the foundation and crown of empire are es- tablished in the

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consent of the obedient.

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## DIVIDEND.

A fund to be divided. The share allotted to each of several [arsons en- titled to share in a division of profits or property. Thus, dividend may denote a fund set apart by a corporation out of its profits, to be apportioned among the shareholders, or the proportional amount falling to each. In bankruptcy or insolvency practice, a divi- dend is a proportional payment to the cred- itors out of the insolvent estate. State v. Comptroller of State, 54 N. J. Law, 135, 23 Atl. 122; Trustees of University v. North Carolina R. Co., 76 N. C. 103, 22 Am. Rep. 671 ; De Koven v. Alsop, 205 111. 309, 68 N.

E. 930, 63 L. R. A. 587 ; Hyatt v. Allen, 56

N. Y. 533, 15 Am. Rep. 449 ; Cary v. Savings Union. 22 Wall. 38, 22 L. Ed. 779 ; In re Ft Wayne Electric Corp. (D. C.) 94 Fed. 109 ; In re Fielding (D. C.) 96 Fed. 800.

In old English law. The term denotes one part of an Indenture, (q. v.)

—Preferred dividend. One paid on the pre- ferred stock of a corporation ; a dividend paid to one class of shareholders in priority to that paid to another. Chaffee v. Railroad Co., 55 Vt. 129; Taft v. Railroad Co., 8 R. I. 310, 5 Am. Rep. 575. — Scrip dividend. One paid in scrip, or in certificates of the ownership of a corresponding amount of capital stock of the company thereafter to be issued. Bailey v. Railroad Co.. 22 Wall. 604, 22 L. Ed. 840.— Stock dividend. One paid in stock, that is, not in money, but in a proportional number of shares of the capital stock of the company, which is ordinarily increased for this purpose to a corresponding extent Kaufman v. Char-

1 1VIDEND

lottesville Woolen Mills Co., 03 Va. 073, 25 8.

E. 1003; Thomas v. Gregg, 78 Md. 545, 28 Atl. 505. 44 Am. SL Rep. 310.— E* dividend. A phrase used by stock brokers, meaning that a sale'of corporate stock does not entry with it the seller's right to receive his proportionate share of a dividend already declared and short- ly payable.

. DIVIDEND A. In old records. An in- denture ; one counterpart of an indenture.

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## D IVIN  ARE.

Lat. To divine; to con- jecture or guess ; to foretell. Vicinatio, a conjecturing or guessing.

Divinatio, non interpretatio eat, qnse omnino reoedit a litera. That is guess- ing, not interpretation, which altogether de- parts from the letter. Bac. Max. 18, (In reg. 3,) citing Yearb. 3 Hen. VI. 20.

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**[Scripture] — Scripture**

**[Deuteronomy 18:10, KJV]**

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There shall not be found among you any one that maketh his son or his daughter to pass through the fire, or that useth divination, or an observer of times, or an enchanter, or a witch,

Why: The verse names and prohibits divination itself — the very act the Latin verb denotes. [re-homed from 'DIVINARE' to 'D IVIN ARE' (OCR headword / parser-merge artifact)]

## DIVINE LAWS.

As distinguished from those of human origin, divine laws are those of which the authorship Js ascribed to God, being either positive or revealed laws or the laws of nature. Mayer v. Broke, 40 W. Va. 246, 22 S. E. 58; Borden v. State, 11 Ark. 527, 44 Am. Dec. 217.

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**[Scripture] — Scripture**

**[Psalm 19:7, KJV]**

The law of the LORD is perfect, converting the soul: the testimony of the LORD is sure, making wise the simple.

Why: The psalm's celebration of the divine law's perfection — the entry's subject described from inside. (The psalmist's voice, about the LORD, not from Him — flag off.)

## DIVINE SERVICE.

Divine service was the name of a feudal tenure, by which the tenants were obliged to do some special divine services in certain ; as to sing so many masses, to distribute such a sum in alms, and the like. (2 Bl. Comm. 102; 1 Steph. Comm. 227.) It differed from tenure in fran- kalmoign, in this: that, In case of the tenure by divine service, the lord of whom the lands were holden might distrain for its non- performance, whereas, in case of frankal- moign, the lord has no remedy by distraint for neglect of the service, but merely a right of complaint to the visitor to correct it. Mozley & Whitley.

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## DIVISA.

In old English law. A device, award, or decree ; also a devise ; also bounds or limits of division of a parish or farm, etc. Cowell. Also a court held on the bound- ary, in order to settle disputes of the ten- ants.

Dlvisibilis est semper dlvisibilis. A

thing divisible may be forever divided.

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## DIVISIBLE.

That which is susceptible of being divided.

— .Divisible contract. One which is in its nature and purposes susceptible of division and apportionment, having two or more parts in re- spect to matters and things contemplated and embraced by it, not necessarily dependent on each other nor intended by the parties so to be. Horseman v. Horseman, 43 Or. 83, 72 I’ac. 698.

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## DIVISIM.

In old English law. Sever- ally; separately. Bract, fol. 47.

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## DIVISION.

In English law. One of the smaller subdivisions of a county. Used in

Lincolnshire as synonymous with “riding” in Yorkshire.

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## DIVISION OF OPINION.

In the prac- tice of appellate courts, this term denotes such a disagreement among the judges that there is not a majority in favor of uuy one view, and hence no decision can be rendered on the case. But it sometimes also denotes a division into two classes, one of which may comprise a majority of the judges ; as ■when we speak of a decision having proceed- ed from a “divided court.”

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## DIVISIONAL COURTS.

Courts in Eng- land, consisting of two or (in special cases) more judges of the high court of justice, sitting to transact certain kinds of business which cannot be disposed of by one Judge.

. DIVISUM IMPERIUM. Lat A divided jurisdiction. Applied, e. g., to the jurisdic- tion of courts of common law and equity over the same subject 1 Kent Comm. 366; 4 Steph. Comm. 9.

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## DIVORCE.

The legal separation of man and wife, effected, for cause, by the judg- ment of a court, and either totally dissolving the marriage relation, or suspending its ef- fects so far as concerns the cohabitation of the parties. Atherton v. Atherton, 181 U.

S. 155, 21 Sup. Ct 544, 45 L. Ed. 794 ; Mllleir v. Miller, 33 Cal. 355 ; Cast v. Cast 1 Utah, 112.

The dissolution is termed “divorce from the bond of matrimony,” or, in the Latin form of the expression, “a vinculo matrimonii;'' the suspension, “divorce from bed and board,” “o mcnaa ct thoro." The former divorce puts an end to the marriage ; the latter leaves it in full force. 2 Bish. Mar. & Div. $ 225.

The term “divorce” is now applied, in Eng- land, both to decrees of nullity and decrees of dissolution of marriage, while in America it is used only in cases of divorce a mcnaa or a vin- culo, a decree of nullity of marriage being granted for the causes for which a divorce a vinculo was formerly obtainable in England.

—Divorce a mens* et thoro. A divorce from table and bed, or from bed and board. A partial or qualified divorce, by which the par- ties are separated and forbidden to live or co- habit

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together, without affecting the marriage itself. 1 Bl. Comm. 440; 3 Bl. Comm. 94: 2 Steph. Comm. 311; 2 Bish. Mar. & Div. $ 225; Miller v. Clark. 23 Ind. 370; Rudolph v. Ru- dolph (Super. Buff.) 12 N. Y. Supp. 81 ; Zule v. Zule, 1 N. J. Eq. 99.— Divorce a vinculo matrimonii. A divorce from the bond of marriage. A total divorce of husband and wife, dissolving the marriage tie, and releasing the parties wholly from their matrimonial obliga- tions. 1 Bl. Comm. 440; 2 Steph. Comm. 310, 311: 2 Bish. Mar. & Div. { 225; De Roche v. De Roche, 12 N. D. 17, 94 N. W. 770.— For- eign divorce. A divorce obtained out of the state or country where the marriage was solem- nized. 2 Kent, Comm. 106, et seq.— Limited divorce. A divorce from bed and board ; or a judicial separation of husband and wife not dissolving the marriage tie.

Divortinm dleitnr a divertendo, qnia dr divertitnr ab uxore. Co. Litt. 235. Divorce is called from divertendo, because a man Is dlyerted from his wife.

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**[Scripture] — Scripture**

**[Deuteronomy 24:1, KJV]**

When a man hath taken a wife, and married her, and it come to pass that she find no favour in his eyes, because he hath found some uncleanness in her: then let him write her a bill of divorcement, and give it in her hand, and send her out of his house.

Why: The scriptural divorce writ — the legal procedure of divorce itself.

**[Matthew 19:6, KJV]**

Wherefore they are no more twain, but one flesh. What therefore God hath joined together, let not man put asunder.

Why: Jesus' ruling on the marriage bond's indissolubility — the counterweight every divorce law must answer.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Benton, Kramer vs. Kramer, 1979]**

(paraphrase) Benton's film — the prototypical screen divorce — follows Ted and Joanna Kramer through the dissolution of their marriage and the custody fight over their son. (paraphrase)

Why: The entry defines divorce as the legal separation of man and wife dissolving the marriage relation. The film is genuinely about that process, not a title-match.

## DIXIEME.

Fr. Tenth; the tenth part. Ord. Mar. llv. 1, tit. 1, art 9.

Ia old French law. An Income tax pay- able to the crown. Steph. Lect. 350.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: Jesus' ruling on tribute — the scriptural ground of the subject's tax obligation to the crown.

## DO.

Lat. I give. The ancient and apt- est word of feoffment and of gift. 2 Bl. Oomm. 310, 316; Co. Lltt. 9.

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## DO, DICO, ADDICO.

Lat. I give, 1 say, I adjudge. Three words used In the Homan law, to express the -extent of the civil juris- diction of the pristor. Do denoted that he gave or granted actions, exceptions, and judl- ces; dice, that he pronounced judgment; addico, that he adjudged the controverted property, or the goods of the debtor, etc., to the plaintiff. Mackeld. Rom. Law, § 39.

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## DO, LEGO.

Lat I give, 1 bequeath; or I give and bequeath. The formal words of making a bequest or legacy, In the Roman law. Titio et Seio hominem Stichum do, lego, I give and bequeath to Tltius and Selus my man Stlcbus. Inst. 2, 20, 8, 30, 31. The expression Is literally retained In modern wills.

5e apparatus — Not carried into the 5th edition (1979).

## DO VT DES.

Lat. I give that you may give; I give [you] that you may give [me.] A formula in the civil iaw, constituting a general division under which those contracts (termed “innominate”) were classed In which something was given by one party as a con- sideration for something given by the other. Dig. 19, 4; Id. 19, 5, 5; 2 Bl. Comm. 444.

5e apparatus — Not carried into the 5th edition (1979).

## DO UT FACIAS.

Lat. I give that you may do; I give [you] that you may do or make [for me.] A formula In the civil law, under which those contracts were classed In which one party gave or agreed to give money, in consideration the other party did or performed certain work. Dig. 19, 5, 6; 2 Bl. Cqmm. 444.

In this and the foregoing phrase, the con- junction “ui” is not to be taken as the tech- nical means of expressing a consideration. In the Roman usage, this word imported a modus, that is, a qualification ; while a consideration (causa) was more aptly expressed by the word "quia."

5e apparatus — Not carried into the 5th edition (1979).

## DOCIMA8IA PULMONTJM.

In medical jurisprudence. The hydrostatic test used chiefly in cases of alleged infanticide to de- termine whether the child was born alive or dead, which consists In Immersion of the foetal lungs In water. If they have never been inflated they will sink, but will float if the child has breathed.

DOCK, v. To curtail or diminish, as to dock an entail.

DOCK, n. The cage or Inclosed space In a criminal court where prisoners stand when brought In for trial.

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The space, in a river or harbor. Inclosed between two wharves. City of Boston v. Le- Bl.Law Dict.(2d Ed.)— 25

craw, 17 How. 434, 15 L. Ed. 118 ; Bingham v. Doane, 9 Ohio, 167.

“A dock is an artificial basin in connection with a harbor, used for the reception of ves- sels in the taking on or discharging of their cargoes, and provided with gates for prevent- ing the rise add fall of the waters occasioned by the tides, and keeping a uniform level with- in the docks.” Perry v. Haines, 191 U. S. 17, 24 Sup. Ct. 8, 48 L. Ed. 73.

— Dockage. A charge against vessels for the privilege of mooring to the wharves or in the slips. People v. Roberts, 92 Cal. 659, 28 Pac. 689. A pecuniary compensation for the use of a dock while a vessel is undergoing repairs. Ives v. The Buckeye State, 13 Fed. Cas. 184. — Dock-master. An officer invested with

powers within the docks, and a certain dis- tance therefrom, to direct the mooring and removing of ships, so as to prevent obstruction to the dock entrances. Mozley & Whitley.— Dock warrant. In English law. A warrant given by dock-owners to the owner of mer- chandise imported and warehoused on the dock, upon the faith of the bills of lading, as a recognition of his title to the goods. It is a negotiable instrument. Pull. Port of London, p. 375. *

DOCKET, v. To abstract and enter in a book. 3 Bl. Comm. 397, 398. To make a brief entry of any proceeding In a court of justice In the docket

DOCKET, n. A minute, abstract or brief entry; or the book containing such entries. A small piece of paper or parch- ment having the effect of a larger. Blount.

In practice. A formal record, entered in brief, of the proceedings in a court of jus- tice.

A book containing an entry in brief of all the important acts done in court in the con- duct of each case, from its inception to its conclusion. Pub. St Mass. 1882, p. 1290.

The name of “docket” or “trial docket” is sometimes given to the list or calendar of causes set to be tried at a specified term, pre- pared by the clerks for the use of the court and bar.

Kinds of dockets. An appearance docket is one in which the appearances in actions are entered, containing also a brief abstract of the successive steps in each action. A bar docket is an unofficial paper consisting of a transcript of the docket for a term of court, printed for distribution to members of the bar. Gifford v. Cole, 57 Iowa, 272, 10 N. W. 672. An exe- cution docket is a list of the executions sued out or pending in the sheriff’s office. A judg- ment docket is a list or docket of the judg- ments entered in a given court, methodically kept by the clerk or other proper officer, open to public inspection, and intended to afford official notice to interested parties of the ex- istence or lien of judgments.

—Docket fee. An attorney's fee, of a fixed sum. chargeable with or as a part of the costs of the action, for the attorney of the success- ful party ; so called because chargeable on the docket, not as a fee for making docket en- tries. Bank v. Neill, 13 Mont. 377. 34 Pac. 180: Goodyear v. Sawyer (C. C.) 17 Fed. 2.— Docket, striking a. A phrase formerly used in English bankruptcy practice. It referred to the entry of certain tapers at the bankruptcy

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office, preliminary to the prosecution of the fiat against a trader who had become bankrupt. These papers consisted of the affidavit, the bond.

and the petition of the creditor, and their ob- ject was to obtain from the lord chancellor bis fiat, authorizing the petitioner to prosecute his complaint against the bankrupt in the bank- ruptcy courts. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## DOCTOR.

A learned man ; one qualified to give instruction of the higher order In a science or art ; particularly, one who has re- ceived the highest academical degree In his art or faculty, as, a doctor of laws, medicine* or theology. In colloquial language, how- ever, the term is practically restricted to practitioners of medicine. Harrison v. State, 102 Ala. 170, 15 South. 563; State v. Mc- Knight, 131 N. C. 717, 42 S. E. 580, 59 L. R.

A. 187.

This term means, simply, practitioner of phy- sic, without respect to system pursued. A cer- tificate of a homcepathic physician is a “doctor a certificate." Corsi v. Maretzek, 4 E. D. Smith (N. Y.) 1.

5e apparatus — Not carried into the 5th edition (1979).

## DOCTOR AND STUDENT.

The title of a work written' by St. Germain in the reign of Henry VIII. in which many principles of the common law are discussed in a popular manner. It is in the form of a dialogue between a doctor of divinity and a student in law, and has always been considered a book of merit and authority. 1 Kent, Comm. 504; Crabb, Eng. Law, 482.

5e apparatus — Not carried into the 5th edition (1979).

## DOCTORS’ COMMONS.

An Institution near St Paul’s Churchyard, in London, where, for a long time previous to 1857, the ecclesiastical and admiralty courts used to be held.

5e apparatus — Not carried into the 5th edition (1979).

## DOCTRINE.

A rule, principle, theory, or tenet of the law ; as, the doctrine of mer- ger, the doctrine of relation, etc.

Doctrinal interpretation. See INTER- PRETATION.

5e apparatus — Carried into the 5th edition (1979).

## DOCUMENT.

An instrument on which ' is recorded, by means of letters, figures, or marks, matter which may be evidentially used. In this sense the term “document” ap- plies to writings; to words printed, litho- graphed, or photographed; to seals, plates, or stones on which inscriptions are cut or en- graved; to photographs and pictures; to maps and plans. The Inscription may

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be on stone or gems, or on wood, as well as on paper or parchment. 1 Whart. Ev. f 614; Johnson Steel Street-Rail Co. v. North Branch Steel Co. (C. C.) 48 Fed. 194 ; Arnold v. Water Co., 18 R. I. 189, 26 Atl. 55, 19

L. R. A. 602; Hayden v. Van Cortlandt, 84 Hun, 150, 32 N. Y. Supp. 507.

In the plural, the deeds, agreements, title- papers, letters, receipts, and other written instruments used to prove a fact In the civil law. Evidence delivered in the forms established by law, of whatever nature such evidence may be. The term is, however, applied principally to the testimony of witnesses. Sav. Dr. Rom. | 165.

— Ancient documents. Deeds, wills, and other writings more than thirty years old are

so called ; they are presumed to be genuine without express proof, when coming from the proper custody. — Foreign document. One which was prepared or executed in, or which comes from, a foreign state or country.— Judi- cial documents. Proceedings relating to litigation. They are divided into (1) _ judgments, decrees, and verdicts; (2) depositions, examinations, and inquisitions taken in the course of a legal process ; (3) writs, warrants, pleadings, etc., which are incident to any judicial proceedings. See 1 Starkie, Bv. 252. — Public document. A state paper, or other instru- ment of public importance or interest, issued or published by authority of congress or a state legislature. Also any document or record,, evidencing or connected with the public business or the administration of public affairs, preserv- ed in or issued by any department of the gov- ernment. See Hammatt v. Emerson, 27 Me. 335, 46 Am. Dec. 598.— Documentary evi- dence. Such evidence as is furnished by writ- ten instruments, inscriptions, documents of all kinds, and also any inanimate objects admis- sible for the purpose, as distinguished from "oral” evidence, or that delivered by human beings viva voce.

5e apparatus — Carried into the 5th edition (1979).

## DODRANS.

Lat. In Roman law. A subdivision of the as, containing nine un- does the proportion of nine-twelfths, or three-fourths. 2 Bl. Comm. 462, note.

5e apparatus — Not carried into the 5th edition (1979).

## DOE, JOHN.

The name of the fictitious plaintiff in the action of ejectment. 3 Stepb. Comm. 618.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frank Capra, Meet John Doe, 1941]**

(paraphrase) Capra's film turns the law's fictitious placeholder into a character: a down-and-out ballplayer hired to personify 'John Doe,' the ordinary-man signature on a protest letter — the fictitious everyman made flesh. (paraphrase)

Why: The entry: 'The name of the fictitious plaintiff in the action of ejectment.' The film takes the fictitious-person device itself as its premise.

## DOED-BANA.

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In Saxon law! Tbe act- ual perpetrator of a homicide.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: The commandment prohibiting homicide itself — the act the Saxon term names.

## DOER.

In Scotch law. An agent or at- torney. 1 Karnes, Eq. 325.

5e apparatus — Not carried into the 5th edition (1979).

## DOG-DRAW.

In old forest law. The manifest deprehension of an offender against venison in a forest, when he was found drawing after a deer by the scent of a bound led in his hand; or where a person bad wounded a deer or wild beast, by shooting at him, or otherwise, and was caught with a dog drawing after him to receive the same. Manwood, Forest Law, 2, c. 8.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[A Gest of Robyn Hode, c. 1500]**

(paraphrase) The Robin Hood ballads' central offense is deer-poaching in the royal forest — the outlaw caught 'drawing after a deer,' exactly the forest-law deprehension the entry defines. (paraphrase)

Why: The entry defines dog-draw as catching a venison offender found drawing after a deer with a hound. Poaching the king's deer is the ballads' signature crime; genuine fit.

## DOG-LA  TIN.

The Latin of Illiterate persons; Latin words put together on the .English grammatical system.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Terry Jones, Monty Python's Life of Brian, 1979]**

(paraphrase) In the film's famous Latin lesson, a Roman centurion drills Brian on the correct grammar of 'Romans go home' — the screen's best-loved encounter with the illiterate's Latin the entry defines. (paraphrase)

Why: Headword as parsed ('DOG-LA TIN' = DOG-LATIN). The entry: 'The Latin of illiterate persons; Latin words put together on the English grammatical system.' The centurion scene is genuinely about bad Latin being corrected.

## DOGGER.

In maritime law. A light ship or vessel; dogger-flsh, fish brought in ships. Cowell.

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## DOGGER-MEN.

Fishermen that belong to dogger-ships.

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## DOGMA.

In the civil law. A word oc- casionally used as descriptive of an ordi- nance of the senate. See Nov. 2, 1, I ; Dig. 27, 1, 6.

5e apparatus — Carried into the 5th edition (1979).

## DOING.

The formal word by which serv- ices were reserved and expressed in old con- veyances; as "rendering” ( reddendo ) was expressive of rewf. Perk. c. 10, H 625, 635, 638.

' DOITKUf, or DOIT. A base coin of small value, prohibited by St. 3 Hen. V. c. 1. We still retain the phrase, in the com- mon saying, when we would undervalue a man, that he is not worth a doit. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## DOLE.

A part or portion of a meadow Is so called; and the word has the general signification of share, portion, or the like; as "to dole out" anything among so many- poor persons, meaning to deal or distribute in portions to them. Holthouse.

Is Scotch law. Criminal Intent; evil design. Bell, Diet. voc. “Crime.”

DOLES, or DOOL8. Slips of pasture left between the furrows of plowed land.

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## DOLO.

Sax A wound. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DOLG-BOTE.

A recompense for a scar or wound. Cowell.

DOLL Lat. See Doi-tra.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:25, KJV]**

Burning for burning, wound for wound, stripe for stripe.

Why: The lex talionis clause on wounds — the scriptural measure of recompense for a wound.

## DOLLAR.

The unit employed In the United States In calculating money values. It Is coined both In gold and silver, and la of the value of one hundred cents.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Coinage Act of 1792 — established the dollar as the U.S. monetary unit]**

The dollar as the United States' monetary unit, valued at one hundred cents, was established by the Coinage Act of 1792, which created the U.S. Mint and the decimal coinage.

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Why: The entry defines the dollar as the American money unit; the genuine Law-well illumination is the statute that made it the unit. Same statute as the DIME footnote — not duplication, but the same historical fact illumi...

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Lyric (hook): "Cash rules everything around me, C.R.E.A.M., get the money, dollar dollar bill y'all." Black's defines the dollar as the United States' unit for calculating money values; the hook names the dollar bill verbatim and repeatedly as the very object the song is about — money's rule over everything around the speaker.

Why: Added because the lyric is verbatim-certain (one of the most quoted hooks in hip-hop), correctly attributed, and directly illuminates the entry: the legal unit of money value is the song's named subject. No force-fit...

## DOLO.

In Spanish law. Bad or mis- chievous design. White, New Becop. b. 1, tit L c. 1, { 3.

Dolo faoit qui petit quod reddltnrna cat. He acts with guile who demands that which he will have to return. Broom, Max 346.

Dolo m&lo pactum sc non aex-ratnnxm.

Dig. 2, 14, 7, | 9. An agreement induced by fraud cannot stand.

Doloans versa tor in generalibus. A

person Intending to deceive deals In general terms. Wing. Max. 636; 2 Coke, 34a; 6 Clark A F. 699 ; Broom, Max. 289.

Dolnm ex indiciis perapicuia probari coavcait. Fraud should be proved by clear tokena Code, 2, 21, 6; 1 Story, Cont. f 620.

5e apparatus — Not carried into the 5th edition (1979).

## DOLUS.

In the civil law. Guile; de- ceitfulness; malicious fraud. A fraudulent address or trick used to deceive some one; a fraud. Dig. 4, 3, 1. Any subtle contriv- ance by words or acts with a design to cir- cumvent. 2 Kent, Comm. 560: Code, 2, 21.

Such acts or omissions as operate as a deception upon the other party, or violate the just confidence reposed by him, whether there be a deceitful intent (mains animus ) or not. Poth. TraltA de Depot, nn. 23, 27; 8tory, Bailm. | 20a; 2 Kent, Comm. 506, note.

Fraud, willfulness, or lntentlonality. In that use It Is opposed to culpa, which is

negligence merely. In greater or less degree. The policy of the law may sometimes treat extreme culpa as if It were dolus, upon the maxim culpa dolo comparatur. A person Is always liable for dolus producing damage, but not always for culpa producing damage, even though extreme, e. g., a depositary Is only liable for dolus, and not for negligence. Brown.

— Dolus bonus, dolus mains. In a wide sense, the Roman law distinguishes between “good," or rather “permissible” dolus and “bad” or fraudulent dolus. The former Is justifiable or allowable deceit: it is that which a man may employ in self-defense against an unlawful attack, or for another permissible purpose, as when one dissembles the truth to prevent a lunatic from injuring himself or others. The latter exists where one intentionally misleads

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another or takes advantage of another’s error wrongfully, by any form of deception, fraud, or cheating. Mackeld. Rom. Law, f 179 ; Broom, Max. 349 ; 2 Kent, Coram. 560, note.—Dolus duns locum contractu!. Fraud (or deceit)

{living rise to the contract; that is, a fraudu- ent misrepresentation made by one of the parties to the contract, and relied upon by the other, and which was actually instrumental in inducing the latter to enter into the con- tract.—Doll capax. Capable of malice or criminal intention; having sufficient discretion and intelligence to distinguish between right and wrong, and so to become amenable to the criminal laws.— Doll inoapax. Incapable of criminal Intention or malice; not of the age of discretion ; not possessed of sufficient discretion and intelligence to distinguish between right and wrong to the extent of being criminally responsible for his actions.

Dolus auctorls uon uooet successor!.

The fraud of a predecessor prejudices not his successor.

Dolus drouitu aoa purgatur. Fraud Is not purged by circuity. Bac. Max. 4; Broom, Max. 228.

Dolus ost machlnatio, cum aliud dis- simulat aliud agit. Lane, 47. Deceit Is an artifice, since It pretends one thing and does another.

Dolus et fraus nemiai patrooiueutur, (patrociuari debent.) Deceit and fraud shall excuse or benefit no man. Yearb. 14 Hen. VIII. 8; Best, Ev. p. 469, | 428; 1 Story, Eq. Jur. f 396.

Dolus latet in generalibus. Fraud lurks in generalities. Tray. Lat. Max. 162.

Dolus versatur in generalibus. Fraud deals in generalities. 2 Coke, 34a; 3 Coke, 81a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Dolo malo pactum se non servaturum — an agreement induced by fraud cannot stand (Dig. 2, 14, 7, 9)]**

The operative legal consequence of dolus in contract is the Digest rule that an agreement induced by fraud cannot stand.

Why: The entry defines dolus at length (guile, deceit, malicious fraud); the maxim states the principle the definition serves — fraud vitiates the agreement it induces. Copied in its standard certain form (the body carries…

**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

Why: The holiness-code prohibition of dealing falsely — fraud and guile named as forbidden.

**[Humanity] — Humanity / Fiction & Film**

**[Patricia Highsmith, The Talented Mr. Ripley, 1955]**

(paraphrase) Highsmith's Tom Ripley — the charming impostor whose every relation is a 'fraudulent address or trick used to deceive' — is fiction's purest study of dolus, guile as a way of life. (paraphrase)

Why: The entry defines dolus as guile, deceitfulness, malicious fraud, 'any subtle contrivance by words or acts with a design to circumvent.' Ripley is the textbook fictional embodiment.

## DOM.

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PBOC. An abbreviation of Do- mus Proccmm or Domo Procennn; the house of lords in England. Sometimes ex- pressed by the letters D. P.

5e apparatus — Carried into the 5th edition (1979).

## DOMAIN.

The complete and absolute ownership of land; a paramount and In- dividual right of property in land. People v. Shearer, 30 Cal. 658. . Also the real estate so owned. The inherent sovereign pow- er claimed by the legislature of a state, of controlling private property for public uses, is termed the “right of eminent domain.” 2 Kent, Comm. 339. See Eminent Domain.

A distinction has been made between “prop- erty" and "domain.” The former is said to be that quality which is conceived to be in the thing itself, considered as belonging to such or such person, exclusively of all others. By the latter is understood that right which the owner has of disposing of the thing. Hence "domain and “property" are said to be correlative terms. The one is the active right to dispose of; the other a passive quality which follows the thing and places it at the disposition of the owner. 3 Toullier, no. 83.

-■-National domain. A term sometimes ap- plied to the aggregate of the propertyowned directly by a nation. Civ. Code In. 1900, art. 486.— Public domain. This term embraces all lands, the title to which, is in the United States, including as well land occupied for the purposes of federal buildings, arsenals, dock-yards, etc., as land of an agricultural or mineral character hot yet granted to private owners. Barker v. Harvey, 181 U. S. 481, 21 Sup. Ct. 690. 45 L. Ed. 963 ; Day Land & Cattle Co. v. State, 68 Tex. 526, 4 S. W. 865.

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**[Scripture] — Scripture**

**[Psalm 24:1, KJV]**

The earth is the LORD's, and the fulness thereof; the world, and they that dwell therein.

Why: The psalm locates absolute ownership in God — the root from which every human domain derives.

## DOMBEC, DOMBOC.

(Sax. From dom, judgment, and bee, hoc, a book.) Dome-book or doom-book. A name given among the Saxons to a code of laws. Sev- eral of the Saxon kings published domboca, but the most important one was that attrib- uted to Alfred. Crabb, Com. Law, 7. This is sometimes confounded with the celebrated Domesday-Book. See Dome-Book, Domes- DAT.

DOMESTIC, n. Domestics, or. In full, domestic servants,, are servants who reside In the same house with the master they serve. The term does not extend to work- men or laborers employed out of doors. Ex parte Meason, 5 Bin. (Pa.) 167.

The Louisiana Civil Code enumerates as domestics those who receive wages and stay In the house of the person paying and em- ploying them, for his own service or that of his family; such as valets, footmen, cooks, butlers, and others who reside in the house. Persons employed in public houses are not included. Cook v. Dodge, 6 La. Ann. 276.

DOMESTIC, ad j. Pertaining, belonging, or relating to a home, a domicile, or to the place of

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birth, origin, creation, or transac- tion.

—Domestic animals. Such as are habituated to live in or about tbe habitations of men, or such as contribute to the support of a family or the wealth of the community. This term in- cludes horses, (State v. Gould, 26 W. Va. 264 ; Osborn v. Lenox, 2 Allen [MassJ 207,) but may or may not include dogs. See Wilcox v. State, 101 Ga. 593, 28 S. E. 981, 39 L. R A. 709 ; State v. Harriman, 75 Me. 562, 46 Am. Rep. 423 ; Hurley v. State, 30 Tex. App. 333, 17 S.

W. 455, 28 Am. St. Rep. 916.— Domestio courts. Those existing and having jurisdiction at the place of the party’s residence or domicile. Dickinson v. Railroad Co., 7 W. Va. 417.

As to domestic “Administrators,” “Attach- ment," “Bill of Exchange,” “Commerce,” “Corporations," "Creditors,” “Factors,” “Fixtures,” “Judgment,” and "Manufac- tures,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## DOME.

(Sax.) Doom; sentence; Judg- ment. An oath. The homager's oath in the black book of Hereford. Blount.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 12:14, KJV]**

For God shall bring every work into judgment, with every secret thing, whether it be good, or whether it be evil.

Why: The Preacher's doctrine of universal judgment — the doom toward which every sentence points.

## DOME-BOOK.

A book or code said to have been compiled under the direction of Alfred, for the general use of the whole kingdom of England; containing, as is sup- posed, the principal maxims of the common law, the penalties for misdemeanors, and the forms of judicial proceedings. It is said to have been extant so late as the reign of Edward IV., but is now lost. 1 Bl. Comm. 64, 65.

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## DOME8DAY, DOMESDAY - BOOK.

(Sax.) An ancient record made in the time of William the Conqueror, and now remain- ing in the English exchequer, consisting of two volumes of unequal size, containing mi- nute and accurate surveys of the lands in England. 2 Bl. Comm. 49, 50. The work was begun by five Justices in each county in 1081, and finished in 1086.

5e apparatus — Not carried into the 5th edition (1979).

## DOMESMEN.

(Sax.) An inferior kind of Judges. Men appointed to doom (Judge) in matters in controversy. Cowell. Suitors in a court of a manor in ancient demesne, who are Judges there. Blount; Whishaw; Termes de la Ley.

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5e apparatus — Not carried into the 5th edition (1979).

## DOMESTICU8.

In old European law. A seneschal, steward, or major domo; a Judge's assistant; an assessor, ( q . v.) Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## DOMICELLA.

In old English law. A damsel. Fleta, lib. 1, c. 20, i 80.

DOMICELI/U8. In old English law. A better sort of servant in monasteries; also ,an appellation of a king’s bastard.

5e apparatus — Not carried into the 5th edition (1979).

## DOMICILE.

That place in which a man has voluntarily fixed the habitation of him- self and family, not for a mere special or temporary purpose, but with the present In- tention of making a permanent home, until some unexpected event shall occur to induce him to adopt some other permanent home. In re Gameau, 127 Fed. 677, 62 C. C. A. 403.

In its ordinary acceptation, a person’s domi- cile is tbe place where he lives or has his home. In a strict and legal sense, that is properly the domicile of a person where he has his true, fixed, permanent home and principal establish- ment, and to which, whenever he is absent, he has the intention of returning. Anderson v. Anderson, 42 Vt. 350, 1 Am. Rep. 334.

Domicile is but the established, fixed, perma- nent, or ordinary dwelling-place or place of resi- dence of a person, as distinguished from his temporary and transient, though actual, place of residence. It is his legal residence, as dis- tinguished from hia temporary place of abode;

or his home, as distinguished from a place to which business or pleasure may temporarily call him. Salem v. Lyme, 29 Conn. 74.

Domicile is the place where a person has fixed his habitation and has a permanent residence, without any present intention of removing therefrom. Crawford v. Wilson, 4 Barb. (N. Y.) 504, 520.

One's domicile is the place where one’s family permanently, resides. Daniel v. Sullivan, 40 Ga. 277.

In international law, “domicile” means a resi- dence at a. particular place, accompanied with positive or presumptive proof of intending to continue there for an unlimited time. State v. Collector of Bordentown. 32 N. J. Law, 192.

Bales, 13 Fed. Cas. 803. — Necessary domicile. That kind of domicile which exists by operation of law, as distinguished from voluntary domicile or domicile of choice. Phillim. Dom. 27-97.

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## DOMICIUSD.

Established in a given domicile; belonging to a given state or jur- isdiction by right of domicile.

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## DOMICILIARY.

Pertaining to domicile ; relating to one's domicile. Existing or creat- ed at, or connected with, the domicile of a suitor or of a decedent.

“Domicile” and “residence” are not syn- onymous. The domicile is the home, the fixed plate of habitation; while residence is a transient place of dwelling. Bartlett v. New York. 5 Sandf. (N. Y.) 44.

The domicile is the habitation fixed in any place with an intention of always staying there, while simple residence is much more temporary in its character. New York v. Genet, 4 Hun (N. Y.) 489.

Glassification. Domicile is of three sorts, —domicile by birth, domicile by choice, and dom- icile by operation of law. The first is the com- mon case of the place of birth, domicilium orig- inia; the second is that which is voluntarily acquired by a party, proprio mot u; the last is consequential, as that of the wife arising from marriage. Story, Confl. Laws, jj 40. And see Railroad Co. v. Kimbrough, 115 Ky. 512, 74

S. W. 229; Price v. Price, 156 Pa. 617, 27 Atl. 291 ; White v. Brown, 29 Fed. Cas. 992. The following terms are also used: Commercial domicile. A domicile acquired t>y the main- tenance of a commercial establishment ; a domi- cile which a citizen of a foreign country may acquire by conducting business in another coun- try. U. S. v. Chin Quong Look (D. C.) 52 Fed. 204; Lau Ow Bew v. IT. S., 144 U. S. 47, 12 Sup. Ct. 517, 36 L. Ed. 340. — De facto domi- cile. In French law, permanent and fixed res- idence in France of an alien who has not ac- uired French citizenship nor taken steps to o so, but who intends to make bis home per- manently or indefinitely in that country ; call- ed domicile "de facto” because domicile in the full sense of that term, as used in France, can only be acquired by an act equivalent to nat- uralization. In re Cruger's Will, 36 Misc. Rep. 477, 73 N. Y. Supp. 812.— Domicile of origin. The home of the parents. Phillim. Dom. 25, 101. That which arises from a man’s birth and connections. 5 Yes. 750. The domicile of the parents at the time of birth, or what is termed the "domicile of origin,” constitutes the domicile of an infant, and continues until aban- doned, or until the acquisition of a new domi- cile in a different place. Prentiss v. Barton, 1 Brock. 389, 393. Fed. Cas. No. 11,384.— Domi- cile of succession. This term, as distinguish- ed from a commercial, political, or forensic domicile, means the actual residence of a person within some jurisdiction, of such a character as shall, according to the well-established princi- ples of public law, give direction to the succes- sion of Jus personal estate. Smith v. Croora, 7 Fla. 81.— Elected domicile. The domicile of parties fixed in a contract between them for the purposes of such contract. Woodworth v. Bank of America, 19 Johns. (N. Y.) 417, 10 Am. Dec. 239.— Foreign domicile. A domicile estab- lished by a citizen or subject of one sovereignty within the territory of another.— National domicile. The

domicile of a person, consid- ered as being within the territory of a particu- lar nation, and not with reference to a particu- lar locality or subdivision of a nation. — Natu- ral domicile. The same as domicile of origin or domicile by birth. Johnson v. Twenty-One

5e apparatus — Not carried into the 5th edition (1979).

## DOMICILIATE.

To establish one’s domi- cile; to take up one’s fixed residence in a given place. To establish the domicile of another person whose legal residence fol- lows one’s own.

5e apparatus — Not carried into the 5th edition (1979).

## DOMICILIATION.

In Spanish law. The acquisition of domiciliary rights and status, nearly equivalent to naturalization, which may be accomplished by being born in the kingdom, by conversion to the Cath- olic faith there, by taking up a permanent residence in some settlement and marrying a native woman, and by attaching oneself to the soil, purchasing or acquiring real property and possessions. Yates v. lams, 10 Tex. 168.

5e apparatus — Not carried into the 5th edition (1979).

## DOMICILIUM.

Lat Domicile, (q. «.)

5e apparatus — Not carried into the 5th edition (1979).

## DOMIGERICM.

In old English law. Power over another; also danger. Bract. L 4, t. 1, c. 10.

DOMINA, (DAME.) A title given to honorable women, who anciently, in their own right of inheritance, held a- barony. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINANT TENEMENT.

A term used in the civil find Scotch law, and thence in ours, relating to servitudes, meaning the tenement or subject in favor of which the service is constituted; as the tenement over which the servitude extends is called the “servient tenement” Wharton ; Walker v. Clifford, 128 Ala. 67, 29 South. 588, 86 Am St. Rep. 74 ; Dillman v. Hoffman, 38 Wis. 572; Stevens v. Dennett, 51 N. H. 339.

5e apparatus — Carried into the 5th edition (1979).

## DOMINATIO.

In old English law. Lordship.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINICA PALM ARUM.

( Dominica in ramia p almarum.) L . Lat. Palm Sun- day. Townsh. PI. 131; Cowell; Blount.

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**[Scripture] — Scripture**

**[John 12:13, KJV]**

Took branches of palm trees, and went forth to meet him, and cried, Hosanna: Blessed is the King of Israel that cometh in the name of the Lord.

Why: The Gospel account of the palm-branch entry the feast commemorates. [re-homed from 'DOMINICA PALMARUM' to 'DOMINICA PALM ARUM' (OCR headword / parser-merge artifact)]

## DOMINICAL.

That which denotes the Lord’s day, or Sunday.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Revelation 1:10, KJV]**

I was in the Spirit on the Lord's day, and heard behind me a great voice, as of a trumpet,

Why: Scripture's sole naming of 'the Lord's day' — the day the entry defines.

## DOMINICIDE.

The act of killing one’s lord or master.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINICUM.

Lat. Domain ; demain ; demesne. A lordship. That of which one has the lordship or ownership. That which

DOMINUS REX NULLUM HABERE

remains under the lord’s immediate charge and control. Spelman.

Property; domain; anything pertaining to a lord. Cowell.

In ecclesiastical law. A church, or any other building consecrated to God. Du Gauge.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINICUM ANTIQUUM.

In old

English law. Ancient demesne. Bract fob 3606.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINIO.

Sp. In Spanish law. A term corresponding to and derived from the Latin dominium, ( q . v.) Dominio alto, em- inent domain; dominio directo, immediate ownership; dominio utile, beneficial owner- ship. Hart T. Burnett 15 Cal. 556.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINION.

Ownership, or right to property. 2 Bl. Comm. 1. Title to an ar- ticle of property which arises from the pow- er of disposition and the right of claiming it Baker v. Westcott, 73 Tex. 129, 11 S.

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W. 157. “The holder has the dominion of the bill.” 8 East, 579.

Sovereignty or lordship; as the dominion of the seas. Moll, de Jure Mar. 91, 92.

In the civil law. with reference to the title to property which is transferred by a sale of it dominion is said to be either “proximate” or “remote.” the former being the kind of title vest- ing in the purchaser when he has acquired both the ownership and the possession of the article, the latter describing the nature of his title when he has legitimately acquired the owner- ship of the property but there has been no de- livery. Coles v. Perry, 7 Tex. 109.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:26, KJV]**

And God said, Let us make man in our image, after our likeness: and let them have dominion over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth, and over every creeping thing that creepeth upon the earth.

Why: The creation grant of dominion — man given rule over the earth, the charter of human dominion.

## DOMINIUM.

In the civil and old Eng- lish law. Ownership; property In the larg- est senste. Including both the right of prop- erty and the right of possession or use.

The mere right of property, as distinguish- ed from the possession or usufruct. Dig. 41, 2, 17, 1; Calvin. The rftht which a lord bad in the fee of his tenant. In this sense the word is very clearly distinguished by Bracton from dominicum.

The estate of a feoffee to uses. “The fe- offees to use shall have the dominium, and the cestui que use the disposition.” Latch. 137.

Sovereignty or dominion. Dominium mar- ls, the sovereignty of the sea.

— Dominium directum. In the civil law. Strict ownership; that which was founded on strict law, as distinguished from equity. In later law. Property without use; the right of a landlord. Tayl. Civil Law, 478. In feud- al law. Right or proper ownership : the right of a superior or lord, as distinguished from that of his vassal or tenant. The title or property which the sovereign in England is considered as possessing in all the lands of the kingdom, they being holden, either immediately or med- iately of him as lord paramount.— Dominium directum et utile. The complete and abso- lute dominion in property; the union of the title and the exclusive use. Fairfax v. Hunter, 7 Crunch, 603. 3 L. Ed. 453.— Dominium om- inous. Eminent domain.— Dominium plen- um. Full ownership; the union of the domi- nium directum with the domtstuis utile. TayL

Civil Xaw, 478.— Dominium utile. In ' the civil law. Equitable or praetorian ownershd>; that which was founded on equity. Mackeld. Rom. Law, | 327, note. In later law. Use without property ; the right of a tenant. Tayl. Civil Law, 478. In feudal law. Useful or beneficial ownership; the usufruct, or right to the use and profits of the soil, as distinguished from the dominium directum, (q. v.,) or owner- ship of the soil itself ; the right of a vassal or tenant. 2 Bl. Comm. 105.

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Dominium non potest esse in pendent!.

Lordship cannot be In suspense, i. e„ prop- erty cannot remain in abeyance. Halk. Law Max. 39.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 115:16, KJV]**

The heaven, even the heavens, are the LORD's: but the earth hath he given to the children of men.

Why: The verse divides ownership — heaven the LORD's, earth given to men — the scriptural statement of human dominium.

## DOMINO VOLENTE.

Lat The own- er being willing; with- the consent of the owner.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINUS.

In feudal and eoelesias- tieal law. A lord, or feudal superior. Dominut rem, the lord the king; the king’s title as lord paramount. 1 Bl. Comm. 867. Dominut capitalit, a chief lord. Dominut mediae, a mesne or intermediate lord. Dom- inut ligiut, liege lord or sovereign. Id.

Lord or sir; a title of distinction. It usually denoted a knight or clergyman; and, according to Cowell, was sometimes given to a gentleman of quality, though not a knight, especially if he were lord of a manor.

The owner or proprietor of a thing, as distinguished from him who uses It merely. Calvin. A master or principal, as distin- guished from an agent or attorney. Story, Ag. | &

In the civil law. A husband. A fami- ly. Vlcat

Deminus capitalis loco hasredls hake- tux, quo ties pex defectum vel delictum extinguitur sanguis sui . tenentis. Co.

Litt 18. The supreme lord takes the place of the heir, as often as the blood of the ten- ant is extinct through deficiency or crime.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINUS LITIS.

Lat. The master of the suit ; i. e., the person who was really and directly interested in the suit as a party, as distinguished from his attorney or advocate. But the terra is also applied to one who, though not originally a party, has made him- self such, by intervention or otherwise, and has assumed entire control' and responsibil- ity for one side, and is treated by the court as liable for costs. See In re Stover, 1 Curt. 201, Fed. Cas. No. 13,507.

5e apparatus — Not carried into the 5th edition (1979).

## DOMINUS NAVIS.

In the civil law. The owner of a vessel. Dig. 39, 4, 11, 2.

Domlnua non maxitnbit pupillum nisi semel. Co. Lltt. 9. A lord cannot give a ward in

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marriage bnt once.

Dominua turn, nullum habere potest param, multo minus superiorem. The

king cannot have an equal, much less a su- perior. 1 Reeve, Eng. Law, 115,

DOUTiE. Lat Tame ; domesticated ; not wild. Applied to domestic animals. In which a man may have an absolute proper* ty. 2 Bl. Comm. 391.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Peter Weir, Master and Commander: The Far Side of the World, 2003]**

(paraphrase) Weir's film is a sustained portrait of the master of a vessel — Captain Aubrey's absolute authority over and responsibility for his ship and crew. (paraphrase)

Why: The entry: 'The owner of a vessel.' The film's captain is master (if not owner) of the ship; the note marks the slight shift from ownership to command while keeping the genuine link to ship-mastery.

## DOMMAGES INTEBJET8.

In French law. Damages.

5e apparatus — Not carried into the 5th edition (1979).

## DOMO REF ARANDA.

A writ that lay for one against his neighbor, by the antici- pated fall of whose house he feared a dam- age and Injury to his own. Reg. Orig. 153.

5e apparatus — Not carried into the 5th edition (1979).

## DOMTJS.

Lat In the civil and old Eng- lish law. A house or dwelling; a habita- tion. Inst 4, 4, 8; Townsh. PI. 183-185. Bennet v. Bittle, 4 Bawle (Pa.) 342.

-Domni oapitularis. In old records. A chapter-house ; the chapter-house. Dyer, 265. —Domna oontrersonun. An ancient house built or appointed by King Henry III. for such Jews as were converted to the Christian faith; but King Edward III., who expelled the Jews from the kingdom, deputed the place for the custody of the rolls and records of the chan- cery. Jacob.— Domna Dei. The house of

God ; a name applied to many hospitals and religious houses.— Domna mansionalis. A mansion house. 1 Hale, P. C. 558; State v. Brooks, 4 Conn. 446; State v. Sutcliffe. 4 Strob. (S. C.) 376.— Domna prooerunt. The house of lords, abbreviated into Dost. Proo., or

D. P.

Domna ana eniqne eat tntlaalmum re- fnginm. To every man his own house Is his safest refuge. 5 Coke, 916; 11 Coke, 82 ; 3 Inst. 162. The house of every one Is to him as his castle and fortress, as well for his defense against Injury and violence as for his repose. 5 Coke, 916; Say. 227; Broom, Max. 432. A man’s dwelling-house is his castle, not for his own personal protection merely, but also for the protection of his family and his property therein. Curtis v. Hubbard, 4 Hill (N. Y.) 437.

Domna tntiaaimnm eniqne refuginm atqne veoeptacnlnm ait. A man’s house should be his

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safest refuge and shelter. A maxim of the Roman law. Dig. 2, 4, 18.

Dons elnndcstina annt semper anspleioam. 3 Coke, 81. Clandestine gifts are al- ways suspicious.

Donarl videtnr, quod nullo jure co- gente conoeditur. Dig. 50, 17, 82. A thing is said to be given when It Is yielded other- wise than by virtue of right

DONATARItTS. A donee; one to whom something Is given.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Domus sua cuique est tutissimum refugium — to every man his own house is his safest refuge (5 Coke, 91a; 11 Coke, 82a; 3 Inst. 162)]**

The dwelling-house carries the law's special protection under the castle doctrine: to every man his own house is his safest refuge, as his castle and fortress for defense and repose.

Why: The entry defines domus as house/dwelling; the maxim states the operative legal principle attached to the dwelling — the castle doctrine quoted in the same body — which is why the dwelling has special legal status (bu...

## DONATIO.

Lat. A gift A transfer of the title to property to one who receives It without paying for it Vlcat. The act by which the owner of a thing voluntarily trans- fers the title and possession of the same from himself to another person, without any con- sideration.

Its literal translation, "gift” has acquired in real law a more limited meaning, being applied to the conveyance of estates tail. 2 Bl. Comm. 316: Littleton, g 59; West, 8ymb. { 254 ; 4 Cruise, Dig. 51.

Classification. By the civil law (adopted into the English and American law) donations are either infer vivos (between living persons) or mortis causa (in anticipation of death.) As to these forms, see infra. A donatio or gift as between living persons is called donatio mera or puro when it is a simple gift without com- pulsion or consideration, that is, resting solely on the generosity of the donor, rb in the case of most .charitable gifts. It is called donatio remuneratoria when given as a reward for past services, but still not under any legal compul- sion, as in the case of pensions and land-grants. It is called donatio sub modo (or modalis) when given for the attainment of some special object or on condition that the donee shall do some- thing not specially for the benefit of the donor, as 'in the case of the endowment of hospitals, colleges, etc., coupled with the condition that they shall be established and maintained. Mack- eld. Rom. Law, § 466; Fisk v. Flores, 43 Tex. 340; Noe v. Card, 14 Cal. 576. The fol- lowing terms are also used: Donatio condition- alls, a conditional gift ; donatio relata, a gift made with reference to some service already done, (Fisk v. Flores, 43 Tex. 340;) donatio stricta et coarctura, a restricted gift, as an es- tate tail.

—Donatio inofficiosa. An inofficious (undo- tiful) gift ; a gift of so great a part of the don- or’s property that the birthright portion of his heirs is diminished. Mackeld. Rom. Law, g 469. — Donatio inter vivos. A gift between the living. The ordinary kind of gift by one per- son to another. 2 Kent, Comm. 438 ; 2 Steph. Comm. 102. A term derived from the civil law. Inst. 2, 7, 2. A donation inter vivos (between living persons) is an act by which the donee divests

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himself at present and irrevocably of the thing given in favor of the donee who ac- cepts it Civ. Code La. art 1468.— Donatio mortis eansa. A gift made by a person in sickness, who, apprehending bis dissolution near, delivers, or causes to be delivered, to an- other the possession of any personal goods, to keep as bis. own in case of the donor’s decease. 2 Bl. Comm. 514. The civil law defines it to be a gift under apprehension of death ; as when anything is given upon condition that, if the donor dies, the donee shall possess it ab- solutely, or return it if the donor should sur- vive or should repent of having made the gift, or if the donee should die before the donor. Adams v. Nicholas, 1 Miles (Pa.) 109-117. A gift in view of death is one which is made ip contemplation, fear, or peril of death, and with intent that it shall take effect only in case of the death of the giver. Civ. Code Cal. g 1149. A donation mortis causa (in prospect of death) is an act to take effect when the do- nor shall no longer exist, by which he disposes of the whole or a part of his property, and which is irrevocable. Civ. Code La. art. 1469. —Donatio propter nuptias. A gift on account of marriage. In Roman law, the bridegroom’s gift to the bride in antipicatjon of marriage and to secure her dos was called “donatio ante nuptias;’’ but by an ordinance of Justinian such gift might be made after as well as before marriage, and in that case it waB called “donatio propter nuptias.’’ Mackeld. Rom. Law, g 572.

Donatio non praesnmitnr. A gift is not presumed. Jenk. Cent 109.

Donatio perilcitar possessione aoci- pientia. A gift is perfected [made complete] by the possession of the receiver. Jenk. Cent 109, case 9. A gift is incomplete until pos- session is delivered. 2 Kent Comm. 438.

' Donatio principle Intelligltur sine prsejndlclo tertll. Dav. Ir. K. B. 75. A gift of the prince is understood without prej- udice to a third party.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Donatio non praesumitur — a gift is not presumed (Jenk. Cent. 109)]**

Gift law's operative presumption rule is that a gift is not presumed — one who claims a gift must prove the donative intent.

Why: Copied verbatim from the entry's own maxim list. The entry classifies gifts exhaustively; the maxim states the principle behind gift litigation — the burden rule — which the classification does not supply. The compres…

**[Scripture] — Scripture**

**[James 1:17, KJV]**

Every good gift and every perfect gift is from above, and cometh down from the Father of lights, with whom is no variableness, neither shadow of turning.

Why: The verse defines the archetypal gift — gratuitous, from above — which is what donatio is in law: transfer without consideration.

## DONATION.

In ecclesiastical law. A

mode of acquiring a benefice by deed of gift alone, without presentation, Institution, or Induction. 3 Steph. Comm. 81.

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In general. A gift. See Donatio.

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**[Humanity] — Humanity / Fiction & Film**

**[O. Henry, 'The Gift of the Magi,' 1905]**

(paraphrase) O. Henry's story — Della selling her hair, Jim his watch, each to buy the other a Christmas gift — is the classic fiction of the pure gift, the entry's general sense of donation. (paraphrase)

Why: The entry gives the ecclesiastical sense and adds 'In general. A gift.' The story illuminates the general sense. DONUM and DONOR left bare to avoid duplicating the note.

## DONUM.

Lat. In the civil law. A gift ; a free gift. Calvin. Distinguished from munus. Dig. 50, 16, 194.

5e apparatus — Not carried into the 5th edition (1979).

## DOOM.

In Scotch law. Judicial sen- tence, or judgment The decision or sen- tence of a court orally pronounced by an officer called a “dempster” or “deemster.” In modern usage, criminal sentences still end with the words “which is pronounced for doom.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 5:10, KJV]**

For we must all appear before the judgment seat of Christ; that every one may receive the things done in his body, according to that he hath done, whether it be good or bad.

Why: The judgment seat where sentence is rendered according to deeds — doom in its ultimate form.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Macbeth, c. 1606]**

'What, will the line stretch out to the crack of doom?' — Macbeth, shown Banquo's endless line of kings; 'doom' here keeps its old sense: the Last Judgment.

Why: Verbatim quote verified (Act 4, Scene 1). The entry defines doom as judicial sentence/judgment; 'the crack of doom' is the Day of Judgment — the word's eschatological root, which the Scots legal usage ('pronounced for...

## DONATIVE ADVOWSON.

In ecclesias- tical law. A species of advowson, where the benefice 4s conferred on the clerk by the patron's deed of donation, without presenta- tion, Institution, or induction. 2 BL Comm. 23; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## DONATOR.

A donor ; one who makes a gift, (donatio.)

Donator nnnqnam deiia.it possidere, antequam dona tori us Inclplat possidere.

The donor never ceases to possess, until the donee begins to possess. Bract fol. 416.

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## DONATORTUS.

A donee; a person to •whom a gift Is made; a purchaser. Bract foL 13, et seq.

5e apparatus — Not carried into the 5th edition (1979).

## DONATORY.

The person on whom the king bestows his right to any forfeiture that has fallen to the crown.

5e apparatus — Not carried into the 5th edition (1979).

## DONE.

Distinguished from “made.” "A 'deed made’ may no doubt mean an ‘instru- ment made ;’ but a ‘deed done’ is not an ‘In- strument done,’ — It Is an ‘act done ;’ and therefore these words, ‘made and done,’ apply to acts, as well -as deeds.” Lord Brougham, 4 Bell, App. Cas. 38.

5e apparatus — Carried into the 5th edition (1979).

## DOOMSDAY-BOOK.

See Domesday- Book.

5e apparatus — Carried into the 5th edition (1979).

## DOOR.

The place of usual entrance in a house, or Into a room in the house. State

V. McBeth, 49 Kan. 584, 31 Pac. 145.

5e apparatus — Not carried into the 5th edition (1979).

## DORMANT.

Literally, sleeping; hence Inactive ; In abeyance ; unknown ; concealed.

— Dormant claim. One which is in abey- ance.—Dormant execution. One which a creditor delivers to the sheriff with directions to levy only, and not to sell, until further orders or until a junior execution is received. —Dormant judgment. One which has not been satisfied, nor extinguished by lapse of time, but which has remained so long unex- ecuted that execution cannot now be issued upon it without first reviving the judgment, or one which has lost its lien on land from the failure to issue execution on it or take other steps to enforce it within the time limit- ed by statute. 1 Black, Judgm. (2d Ed.) 8 462; Draper v. Nixon, 93 Ala. 436, 8 South. 489 Dormant partner. See Partners.

Dorminnt aliqraando leges, nnnqnam morion tur. 2 Inst 161. The laws some- times sleep, never die.

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## DORSUM.

Lat. The back. In dorso recordi, on the back of the record. 5 Coke, 446.

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## DORTURE.

(Contracted from dormiture.) A dormitory of a convent ; a place to sleep In.

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## DONEE.

In old English law. He to

whom lands were given ; the party to whom a donatio was made.

In later law. He to whom lands or tene- ments are given In tail. LItt 8 57.

In modern and American law. The party executing a power; otherwise called the “appolnter.” 4 Kent Comm. 316.

5e apparatus — Carried into the 5th edition (1979).

## DONIS, STATUTE DE.

See De Donis, the Statute.

5e apparatus — Not carried into the 5th edition (1979).

## DONNEUR D’AVAX.

In French law. Guarantor of negotiable paper other than by Indorsement

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: The proverb on suretyship — the guarantor's peril stated as wisdom. [re-homed from "DONNEUR D'AVAL" to 'DONNEUR D’AVAX' (OCR headword / parser-merge artifact)]

## DONOR.

In old English law. He by

whom lands were given to another ; the par- ty making a donatio.

In later law. He who gives lands or ten- ements to another in tail. Litt. $ 57 ; Termes de la Ley.

In modern and American law. The par- ty conferring a power. 4 Kent, Comm. 316.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for God loveth a cheerful giver.

Why: The scriptural rule of giving — purposed in the heart, not grudging — bearing on the donor's act.

## DOS.

In Roman law. Dowry ; a wife's

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marriage portion ; all that property which on marriage is transferred by the wife her- self or by another to the husband with a view of diminishing the burden which the marriage will entail upon him. It Is of three kinds. Profectitia dos is that which is deriv- ed from the property of the wife’s father or paternal grandfather. That dos Is termed adventitia which Is not profectitia in respect to its source, whether it is given by the wife from her own estate or by the wife’s mother or a third person. It is termed rcccptitia dos when accompanied by a stipulation for its reclamation by the constitutor on the termi- nation of the marriage. See Mackeld. Rom. Law, ii 561, 563.

In old English l»w. The portion given to the wife by the husband at the church door, in consideration of the marriage ; dow- er; the wife's portion out of her deceased husband’s estate in case he had not endowed her.

—Dos ratlonabills. A reasonable marriage portion. A reasonable part of her husbanaa

estate, to which every widow is entitled, of lands of which her husband may have endowed her on the day of marriage. Co. Litt. 336. Dower, at common law. 2 Bl. Comm. 134.

Dos do dote peti non debet. Dower ought not to be demanded of dower. Co. Litt. 31 ; 4 Coke, 1226. A widow is not dow- able of lands assigned to another woman in dower. 1 Hill. Real Prop. 135.

Dos rationabilia vel legitim* est enjns- libet mulieria de quoeuuque tenemento tertia pars omnium terrarum et tene- mentcmm, quae vir suns tenuit in do- miuio suo ut de feodo, etc. Co. Litt. 336. Reasonable or legitimate dower belongs to every woman of a third part of all the lauds and tenements of which her hnsband was seised in bis demesne, as of fee, etc.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 34:12, KJV]**

Ask me never so much dowry and gift, and I will give according as ye shall say unto me: but give me the damsel to wife.

Why: Scripture's own use of 'dowry' — the marriage portion given for the bride — the entry's concept in its biblical dress.

**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

(paraphrase) Austen's novels turn on the marriage portion — the Bennet daughters' slender fortunes, the bargaining over settlements — the dos as the engine of the marriage plot. (paraphrase)

Why: The entry defines dos as the wife's marriage portion transferred on marriage. Austen's fiction is the classic treatment of the portion economy. DOTAL left bare to avoid duplicating the note.

## DOT.

(A French word, adopted in Louisi- ana.) The fortune, portion, or 'dowry which a woman brings to her husband by the mar- riage.

5e apparatus — Carried into the 5th edition (1979).

## DOTAGE.

Dotage is that feebleness of the mental faculties which proceeds from old age. It is a

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diminution or decay of that In- tellectual power -which was once possessed. It is the slow approach of death ; of that irrevocable cessation, without hurt or dis- ease, of all the functions which once be- longed to the living animal. The external functions gradually cease; the senses waste away by degrees; and the mind is imper- ceptibly visited by decay. Owing’s Case, 1 Bland (Md.) 389, 17 Am. Dec. 311.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 12:1, KJV]**

Remember now thy Creator in the days of thy youth, while the evil days come not, nor the years draw nigh, when thou shalt say, I have no pleasure in them;

Why: The Preacher's portrait of age's approach — the 'evil days' of declining powers — which is what dotage names in law.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, c. 1606]**

(paraphrase) Shakespeare's Lear — dividing his kingdom on a whim, cursing his daughters, raging on the heath — is literature's archetype of the 'feebleness of the mental faculties which proceeds from old age.' (paraphrase)

Why: The entry defines dotage at length as age-related mental decay. Lear is the canonical dramatic study of it.

## DOTAL.

Relating to the dos or portion of a woman ; constituting her portion ; com- prised in her portion.

—Dotal property. In the civil law, in Louisi- ana, by this term is understood that property which the wife brings to the husband to assist him in bearing the expenses of the marriage establishment. Extradotal property, otherwise called "paraphernal property,” is that which forms no part of the dowry. Civ. Code La. art. 2335; Fleitas v. Richardson, 147 U. S. 550, 13 Sup. Ct. 495, 37 L.Ed. 276.

5e apparatus — Not carried into the 5th edition (1979).

## DOTALITITTM.

In canon and feudal law. Dower. Spelman, voc. "Doarium Calvin. 2 Bl. Comm. 129. Used as early as

A. D. 841.

5e apparatus — Not carried into the 5th edition (1979).

## DOTATION1.

The act of giving a dowry or portion ; endowment in general, including the endowment of a hospital or other char- itable institution.

DOTE, n. In Spanish law. The marriage portion of a wife. White, New Recop. b. 1, tit. 6, c. 1. The property which the wife gives to the husband on account of marriage, or for the purpose of supporting the matri- monial expenses. Id. b. 1, tit. 7, c. 1, § 1 ; Sehm. Civil Law, 75; Cutter v. Wadding- ham, 22 Mo. 254; Hart v. Burnett, 15 Cal. 566.

DOTE, v. "To besot” is to stupefy, to make dull or senseless, to make to dote ; and “to dote” is to be delirious, silly, or Insane. Gates v. Meredith, 7 Ind. 441.

5e apparatus — Not carried into the 5th edition (1979).

## DOTE ASSIGNANDA.

A writ which lay for a widow, when it was judicially as- certained that a tenant to the king was seis- ed of tenements in fee or fee-tail at the day of his death, and that he held of the king in chief. In such case the widow might come into chancery, and then make oath that she would not marry without the king’s leave, and then she might have this writ. These widows were called the “king’s wid- ows.” Jacob ; Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## DOTE UNDE NIHIL HABET.

A writ which lies for a widow to whom no dower has been assigned. 3 Bl. Comm. 182. By 23 & 24 Viet c. 126, an ordinary action commenced by writ of summons has taken its place; but it remains in force in the United States. Dower unde nihil habet (which title see.)

Doti lex fa-vet; prsemium pudori* est; Ideo parcatur. Co. Litt 31. The law fa- vors dower; it is the reward of chastity; therefore let It be preserved.

5e apparatus — Not carried into the 5th edition (1979).

## DOTH ADMINISTRATE.

Admeasure- ment of dower, where the widow holds more than her share, etc.

5e apparatus — Not carried into the 5th edition (1979).

## DOTISSA.

A dowager.

5e apparatus — Not carried into the 5th edition (1979).

## DOUBLE.

Twofold; acting in ; two ca- pacities or having two aspects; multiplied by two. This term has ordinarily the same meaning in law as in popular speech. The principal compound terms into which it en- ters are noted below.

—Double adultery. Adultery committed by two persons each of whom is married to an- other as distinguished from “single” adultery, where one of the participants is unmarried. Hunter v. U. S., 1 Pin. (Wis.) 91, 39 Am. Dec. 277.— Double avail of marriage. In Scotch law. Double the ordinary or single value of a marriage. Bell. See Duplex Valor Mabi- tagii. — Double bond. In Scotch law. A bond with a penalty, as distinguished from a single bond. 2 Karnes, Eq. 359.— Double complaipt, or double quarrel. In eccle- siastical law. A grievance made known by A clerk or other person, to the archbishop of the province, against the ordinary, for delaying or refusing to do justice in some cause ecclesias- tical, as to give sentence, institute a clerk, etc. It is termed a "double complaint,” because it is most commonly made against both the judge and him at whose suit justice is denied or de- layed ; the effect whereof is that the archbish- op, taking notice of the delay, directs his let- ters,

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under his authentical seal, to all clerks of his province, commanding them to admonish the ordinary, within a certain number of days, to do the justice required, or otherwise to appear before him or his official, and there allege the cause of his delay; and to signify to the ordinary that if he neither perform the thing enjoined, nor appear nor show cause against it, he himself, in his court of audience, will forthwith proceed to do the justice that is due.

Cowell.— Double coats. See Costs.— Dou- ble dam ogee. See Damages.— Double ea- gle. A gold cola of the United {States of the value of twenty dollars.— Double entry. A system of mercantile book-keeping, in. which the entries in the day-book, etc., are posted twice into the ledger. First, to a personal ac- count, that is, to the account of the person with whom the dealing to which any given en- try refers has taken place ; secondly, to an im- personal account, as “goods.” Mozley & Whit- ley.—Double fine. In old English law. A fine ear done grant et render was called a “double fine,” because it comprehended the fine ear cognizance de droit come ceo, etc., and the fine ear conoetsit. 2 Bl. Comm. 353— Double Insurance is where divers insurances are made up- on the same interest in the same subject against the same risks in favor of the same assured, in proportions exceeding the value. 1 Phill. Ins.

IS 359, 366. A double insurance exists where the same person is insured by several insurers separately in respect to the same subject and Interest. Civ. Code Cal. S 2641 ; Wells v. Insurance Co., 9 Serg. & R. (Pa.) 107 ; Insurance Co. v. Gwathmey, 82 Va. 923. 1 S. El. 200; Perkins v. Insurance Co., 12 Mass. 218; Low- ell Mfg. Co. v. Safeguard F. Ins. Co., 88 N. Y. 587.— Double plea, double pleading. See Dupi.icitt ; Plea ; Pleading.— Double

possibility. A possibility upon a possibility. 2 Bl. Comm. 170.— Double rent. In English law. Rent payable by a tenant who continues in possession after the time for which he has given notice to quit, until the time of his quit- ting possession. St. 11 Geo. II. c. 19.— Double taxation. The taxing of the same item or piece of property twice to the same person, or taxing it as the property of one person and again as tbe property of another: but this does not include the imposition of different taxes concurrently on the same property (e. g., a city tax and a school tax), nor the taxation of the same piece of property to different persons when they hold different interests in it or when It represents different values in their bands, as when both the mortgagor and mortgagee of prop- erty are taxed in respect to their interests m it, or when a tax is laid upon the capital or prop- erty of a corporation and also upon the value of its shares of stock in the hands of the sep- arate stockholders. Cook v. Burlington, 59 Iowa, -251, 13 N. W. 113, 44 Am. Hep. 679; Cheshire County Tel. Co. v. State, 63 N. H. 167; Detroit Common Council v. Detroit As- sessore, 91 Mich. 78, 51 N. W. 787, 16 L. R.

A. 59.— Double use. In patent law. An ap- lication of a principle or process, previously nown and applied, to some new use, but which does not lead to a new result or the production of a new article. De Lamar v. De Lamar Min. Co. (C. C.) 110 Fed. 542; In re Blandy, 3 Fed. Oas. 671. — Double value. In English law. This is a penalty on a tenant holding over after his landlord's notice to quit. By 4 Geo. II. c. 28, | 1, it is enacted that if any ten- ant for life or

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years hold over any ldnds, etc., after the determination of his estate, after de- mand made, and notjce in writing given, for delivering the possession thereof, by the land- lord, or the person having the reversion or re- mainder therein, or his agent thereunto law- fully authorized, such tenant so holding over shall pay to the person so kept out of possession at the rate of doable tbe yearly value of the lands, etc., so detained, for so long a time as the same are detained. See Woodf. Land). & Ten. (12th Ed.) 717. et seq. — Double vouch- er. This was when a common recovery was had, and an estate of freehold was first con- veyed to any indifferent person against whom the pnrcipe was brought, and then he vouched the tenant in tail, who vouched over the com- mon vouchee. For, if a recovery were had im- mediately against a tenant in tail, it barred only tbe estate in the premises of which be was

then actually seised, whereas, if the recovery were had against another person, and the ten- ant in tail were vouchee, it barred every latent right and interest which he might have in the lands recovered. 2 Bl. Comm. 359.— Double waste. When a tenant bound to repair suf- fers a bouse to be wasted, and then unlawfully fells timber to repair it, he is said to commit double waste. Co. Litt. 53.— Double will. A will in which two persons join, each leaving his property and estate to the other, so that the survivor takes the whole. Evans v. Smith, 28 Ga. 98, 73 Am. Dec. 751.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, The Double, 1846]**

(paraphrase) Dostoevsky's novella follows the clerk Golyadkin as his identical double appears and usurps his life — the literary archetype of 'acting in two capacities or having two aspects.' (paraphrase)

Why: The entry: 'Twofold; acting in two capacities or having two aspects.' The novel is the classic fiction of the double.

## DOUBLES.

Letters-patent Cowell.

5e apparatus — Carried into the 5th edition (1979).

## DOUBT.

Uncertainty of mind; the ab- sence of a settled opinion or conviction ; the attitude of mind towards tbe acceptance of or belief in a proposition, theory, or statement, in which the judgment is not at rest but inclines alternately to either side. Rowe v. Baber. 93 Ala. 42?, 8 South. 865; Smith v. Railway Co., 143 Mo. 33, 44 S. W. 718; West Jersey Traction Co. v. Camden Horse R. Co., 52 N. J. Eq. 452, 29 Atl. 333.

Reasonable doubt. This is a term often used, probably pretty well understood, but not easily defined. It does not mean a mere possi- ble doubt, because everything relating to human affairs, and depending on moral evidence, is open to some possible or imaginary doubt. It is that state of the case which, after the entire comparison and consideration of all the evi- dence. leaves the minds of jurors in that condi- tion that they cannot say they feel an abiding conviction to a moral certainty of the truth of the charge. Donnelly v. State, 26 N. J.

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Law, 601, 615. A reasonable doubt is deemed to ex- ist, within the rule that the jury should not convict unless satisfied beyond a reasonable doubt, when the evidence is not sufficient to sat- isfy the judgment of the truth of a proposition with such certainty that a prudent man would feel safe in acting upon it in his own important affairs. Arnold v. State, 23 Ind. 170. The burden of proof is upon the prosecutor. All the presumptions of law independent of evi- dence are in favor of innocence ; and every person is presumed to be innocent until he is proved guilty. If upon such proof there is reasonable doubt remaining, the accused is entitled to the benefit of it by an acquittal; for it is not sufficient to establish a probability, though a strong one, arising from the doctrine of chances, that the fact charged is more likely to be true than the contrary, but the evidence must establish the truth of the fact to a rea- sonable and moral certainty, — a certainty that convinces and directs the understanding and satisfies the reason and judgment of those who are bound to act conscientiously upon it. This is proof beyond reasonable doubt; because if the law, which mostly depends upon considera- tions of a moral nature, should go further than this, and require absolute certainty, it would exclude circumstantial evidence altogether. Per Shaw, C. J., in Com. v. Webster, 5 Cush. (Mass.) 320. 52 Am. Dec. 711. And see fur- ther, Tompkins v. Butterfield (C. C.) 25 Fed. 558; State v. Zdanowicz, 69 N. J. Law. 619, 55 Atl. 743 ; U. S. v. Youtsev (C. C.) 91 Fed. 868 ; State v. May. 172 Mo. 630. 72 S. W. 918; Com. v. Childs. 2 Pittsb. R. (Pa.) 400; State v. Ilennessy, 55 Iowa, 300. 7 N. W. 641 ; Harris v. State. 155 Ind. 265, 58 N. E. 75 ; Knight v. State, 74 Miss. 140, 20 South. 860; Carleton v. State, 43 Neb. 373, 61 N. W. 699; State v. Reed. 62 Me. 129; State v. Ching Ling, 16 Or. 419, 18 Pac. 844; Stout v. State, 90 Ind. 1: Bradlev v. State. 31 Ind. 505; Allen v. State, 111 Ala. 80, 20 South. 494; State v. Rover, 11

Nev. 344; Jones v. State, 120 Ala. 303, 25 Sooth. 204 ; Siberry v. State, 133 Ind. 677, 33

N. E. 681; Purkey v. State, 3 Heisk. (Tenn.) 28; U. S. v. Post (D. C.) 128 Fed. 057; U. S. r. Breese (D. C.) l3l Fed. 017.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 1:6, KJV]**

But let him ask in faith, nothing wavering. For he that wavereth is like a wave of the sea driven with the wind and tossed.

Why: The wavering mind 'driven with the wind and tossed' — doubt's own scriptural image.

## DOUBTFUL TITLE.

One as to the va- lidity of which there exists some doubt, ei- ther as to matter of fact or of law; one which Invites or exposes the party holding it to litigation. . Distinguished from a "mar- ketable" title, which is of such a character that the courts will compel its acceptance by a purchaser who has agreed to buy the prop- erty or has bid It in at public sale. Herman v. Somers, 158 Pa. 424, 27 Atl. 1050, 38 Am. St Hep. 851.

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## DOUN.

L. Fr. A gift Otherwise writ- ten “don" and “done." The thirty-fourth chapter of Britton is entitled “Do Donne."

5e apparatus — Not carried into the 5th edition (1979).

## DOVE.

Doves are animals /eras natures, and not the subject of larceny unless they are In the owner’s custody ; as, for example. In a dove-house, or when in the nest before they can fly. Com. v. Chace, 9 Pick. (Mass.) 15, 19 Am. Dec. 348; Ruckman v. Outwater, 28 N. J. Law, 581.

5e apparatus — Not carried into the 5th edition (1979).

## DOW ABUS.

Subject to be charged with dower; as dowable lands.

Entitled or entitling to dower. Thus, a dowable interest in lands is such as entitles the owner to have such lauds charged with dower.

5e apparatus — Not carried into the 5th edition (1979).

## DOWAOEB.

A widow who Is endowed, or who has a Jointure in lieu of dower. In England, this is a title or addition given to the widows of princes, dukes, earls, and other noblemen, to distinguish them from the wives of the heirs, who have right to bear the title.

1 Bl. Comm. 224.

-Dowager-queen. The widow of the king. As such she enjoys most of the privileges be- longing to her as queen consort. It is not treason to conspire her death or violate her chastity, because the succession to the crown is not thereby endangered. No man, however, can marry her without a special license from the sovereign, on pain of forfeiting his lands or goods. 1 Bl. Comm. 233.

5e apparatus — Not carried into the 5th edition (1979).

## DOWEB.

The provision -which the law makes for a widow out of the lands or tene- ments of her husband, for her support and the nurture of her children. Co. Litt. 30 a;

2 Bl. Comm. 130 ; 4 Kent, Comm. 33 ; 1 Washb. Real Prop. 146; Chapin v. Hill, 1

R. I. 452; Hill v. Mitchell, 5 Ark. 610; Smith v. Hines. 10 Fla. 258 ; Hoy v. Varner, 100 Va. 600, 42 S. E. 690.

Dower Is an estate for the life of the wid- ow in a certain portion of the following real estate of her husband, to which she has not relinquished her right during the marriage: (1) Of all lands of which the husband was seised In fee during the marriage ; (2) of all lands to which another was seised in fee to

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his use; (3) of all lands to which, at the time of his death, he' had a perfect equity, having paid all the purchase money therefor. Code Ala. 1886, 8 1892.

The term, both technically and in popular acceptation, has reference to real estate ex- clusively.

“Dower,” in modem use, is and should be dis- tinguished from “dowry.” The former is a provision for a widow on her husband’s death; the latter is a bride’s portion on her marriage. Wendler v. Lambeth, 163 Mo. 428, 63 8. W. 684.

—Dower ad ostium eeclesisa. Dower at the church door or porch. An ancient kind of dow- er in England, where a man, (being tenant in fee-simple, of full age,) openly at the churek door, where all marriages were formerly cele- brated, after affiance made and troth plighted between them, endowed his wife with the whole of his lands, or such quantity as he pleased, at the same time specifying and ascertaining the same. Litt. f 39; 2 Bl. Comm. 133. — Dower by the common law. The ordinary kind of dower in English and American law, consisting of a life interest in one-third of the lands of which the husband was seised in fee at any time during the coverture. Litt f 36 ; 2 Bl. Comm. 132; 2 Steph. Comm. 302 ; 4 Kent, Comm. 35. —Dower by custom. A kind of dower in England, regulated by custom, where the quan- tity allowed the wife differed from the propor- tion of the common law ; as that the wife should have half the husband’s lands; or, fat some places, the whole; and, in some, only a quarter. 2 Bl. Comm. 132; Litt. | 37.— Dow- er do la pluis belle. L. Fr. Dower of the fairest [part.] A species of ancient English dower, incident to the old tenures, where there was a guardian in chivalry, and the wife occu- pied lands of the heir as guardian in socage. If the wife brought a writ of dower against such guardian in chivalry, he might show this mat- ter, and pray that the wife might be endowed de la pluis belle of the tenement in socage. Litt. J 48. This kind of dower wis abolished with the military tenures. 2 Bl. Comm. 132. —Dower ex assensu patris. Dower by the father's assent. A species of dower ad ostium ecclesiec, made when the husband's father was alive, and the son, by his consent expressly giv- en, endowed his wife with parcel of his father’s lands. Litt. 8 40; 2 Bl. Comm. 133 ; Grogan v. Garrison, 27 Ohio St 61.— Dower unde nihil habet. A writ of right which lay for a widow to whom no dower had been assigned.

DOWlE STONES. Stones dividing lands, eta Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Doti lex favet; praemium pudoris est; ideo parcatur — the law favors dower; it is the reward of chastity; therefore let it be preserved (Co. Litt. 31)]**

The policy principle behind the institution of dower is the law's favor toward it: the law favors dower as the reward of chastity, and therefore it is to be preserved.

Why: The entry gives dower's mechanics exhaustively (species, writs, the one-third rule); the maxim states the policy principle behind the institution — why the law protects dower — which the mechanics do not supply. Stand…

**[Scripture] — Scripture**

**[Deuteronomy 14:29, KJV]**

And the Levite, (because he hath no part nor inheritance with thee,) and the stranger, and the

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fatherless, and the widow, which are within thy gates, shall come, and shall eat and be satisfied; that the LORD thy God may bless thee in all the work of thine hand which thou doest.

Why: The law's own provision for the widow — that she 'eat and be satisfied' — the scriptural root of dower as the widow's support. [re-homed from 'DOWER' to 'DOWEB' (OCR headword / parser-merge artifact)]

## DOWMENT.

In old English law. En- dowment; dower. Grogan v. Garrison, 27 Ohio St 61.

5e apparatus — Carried into the 5th edition (1979).

## DOWBESS.

A woman entitled to dow- er ; a tenant in dower. 2 P. Wms. 707.

5e apparatus — Not carried into the 5th edition (1979).

## DOVKT.

The property which a woman brings to her husband in marriage; now more commonly called a “portion.”

By dowry is meant the effects which the wife brings to the husband to support the expenses of marriage. Civil Code La. art. 2337.

This word expresses the proper meaning of the “dos" of the Roman, the “dot" of the French, and the “dote" of the Spanish, law, but is a very different thing from “dower,”

with which it has sometimes been con- founded.

By dowry, in the Louisiana Civil Code, is meant the effects which the wife brings to the husband to support the expenses of marriage. It is given to the husband, to be enjoyed by him so long as the marriage shall last, and the in- come of it belongs to him. He alone has the administration of it during marriage, and his wife cannot deprive him of it. The real estate settled as dowry is inalienable during marriage, unless the marriage contract contains a stipula- tion to the contrary. De Young v. De Young, 6 La. Ann. 7%.

5e apparatus — Not carried into the 5th edition (1979).

## DOZQH.

L. Fr. Twelve; a person twelve years of age, St 18 Edw. II. ; Bar- ring. Ob. St. 208.

5e apparatus — Not carried into the 5th edition (1979).

## DOZEN PEERS.

Twelve peers assem- bled at the instance of the barons, in the reign of Henry III., to be privy counselors, or rather conservators of the kingdom.

5e apparatus — Not carried into the 5th edition (1979).

## DR.

An abbreviation for “doctor;” al- so, in commercial usage, for "debtor," in- dicating the items or particulars in a bill or in an account-book chargeable against the person to whom the bill is rendered or in whose name the account stands, as op- posed to “Cr.” (“credit” or “creditor”), which indicates the items for which he Is given credit. Jaqua v. Shewalter, 10

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Ind. App. 234, 37 N. E. 1072.

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## DRACHMA.

A term employed In old pleadings and records, to denote a groat. Townsh. Pl. 180. .

An Athenian silver coin, of the value of about fifteen cents.

5e apparatus — Not carried into the 5th edition (1979).

## DRACO REGIS.

The standard, ensign, or military colors borne In war by the an- cient kings of England, having the figure of a dragon painted thereon.

5e apparatus — Not carried into the 5th edition (1979).

## DRACONIAN LAWS.

A code of laws prepared by Draco, the celebrated lawgiver of Athens. These laws were exceedingly severe, and the term is now sometimes ap- plied to any laws of unusual harshness.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: 'written not with ink, but blood' — Demades on Draco, via Plutarch, Life of Solon]**

[Maxim: Draco's laws were 'written not with ink, but blood' — the orator Demades, quoted by Plutarch in his Life of Solon.]

Why: The entry defines the Draconian laws as 'exceedingly severe.' Demades' saying (Plutarch, Solon 17) is the classical verdict on exactly that severity; verified via the Perseus text of Plutarch.

## DRAFT.

The common term for a bill of exchange; as being drawn by one person on another. Hinnemann v. Roseuback, 39 N.

Y. 100; Douglass v. Wilkeson, 8 Wend. (N. Y.) 643.

An order for the payment of money drawn by one person on another. It is said to be a nomen generalisgimum, and to Include all such orders. Wildes v. Savage, 1 Story, 30, 29 Fed. Cas. 1226; State v. Warner, 00 Kan. 94, 55 Pac. 342.

Draft also signifies a tentative, provision- al, or preparatory writing out of any docu- ment (as a will, contract, lease, etc.) for purposes of discussion and correction, and which is afterwards to be copied out in its final shape.

Also a small arbitrary deduction or allowance made to a merchant or importer, In the case of goods sold by weight or tax- able by weight, to cover possible loss of weight in handling or from differences In scales. Marriott v. Brune, 9 How. 633, 13

L. Ed. 282; Seelierger v. Mfg. Co., 157 U.

S. 183, 15 Snp. Ct. 583, 39 L. Ed. 665 ; Na- pier v. Barney, 17 Fed. Cas. 1149.

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**[Law] — Law**

**[Law: UCC § 3-104 — negotiable instrument; a draft is an order, a note a promise]**

The draft's defining character as an order — as opposed to a note, which is a promise — is the operative classification in modern negotiable-instruments law: an instrument is a 'draft' if it is an order and a 'note' if it is a promise.

Why: The entry defines the draft as 'an order for the payment of money drawn by one person on another'; the UCC provision is the genuine living rule that turns on exactly that order/promise distinction — the doctrinal poin...

## DRAFTSMAN.

Any one who draws or frames a legal document, e.-g., a will, con- veyance, pleading, etc.

5e apparatus — Carried into the 5th edition (1979).

## DRAGOMAN.

An interpreter employed in the east, and particularly at the Turkish court.

DRAIN, v. To make dry; to draw off water; to rid land of Its superfluous mois- ture by adapting or improving natural wa- tercourses and supplementing them, when necessary, by artificial ditches. People v. Tarim, 58 Cal. 639.

DRAIN, «. A trench or ditch to convey water from wet land; a channel through which water may flow off.

The word has no technical legal meaning. Any hollow space in the ground, natural or ar- tificial, where water is collected and passes off, is a ditch or drain. Gold th wait v. East Bridge- water, 5 Gray (Mass.) 61.

The word “drain” also sometimes denotes the easement or servitude (acquired by grant or prescription) which consists in the right to drain water through another’s land. See 3 Kent, Comm. 436.

5e apparatus — Not carried into the 5th edition (1979).

## DRAM.

In common parlance, this term means a drink of some substance containing alcohol, something which can produce in- toxication. Lacy v. State, 32 Tex. 228.

-Dram-shop. A drinking saloon, where liq- uors are sold to be drunk on the premises. Wright v. People, 101 III. 129; Brockway v. State, 36 Ark. 636: Com. v. Marzynski, 149 Mass. 68, 21 N. E. 228.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 23:29-30, KJV]**

Who hath woe? who hath sorrow? who hath contentions? who hath babbling? who hath wounds without cause? who hath redness of eyes? They that tarry long at the wine; they that go to seek mixed wine.

Why: The passage opens with woe upon 'them that tarry long at the wine' — the dram-drinker's own portrait.

## DRAMATIC COMPOSITION.

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In copy- right law. A literary work setting forth a story, incident, or scene from life, In which, however, the narrative is not related, but Is represented by a dialogue and action ; may include a descriptive poem set to music, or a pnntoinine, but not a composition for mu- sical Instruments alone, nor a mere spectacu- lar exhibition or stage dance. Daly v. Palm- er, 6 Fed. Cas. 1132; Carte v. Duff (C. C.) 25 Fed. 183; Tompkins v. Halleck, 133 Mass. 35, 43 Am. Rep. 480 ; Russell v. Smith, 12 Adol. & El. 236; Martinettl v. McGuire, 16 Fed. Cas. 920; Fuller v. Bemis (C. C.) 50 Fed. 926.

DRAW, n. 1. A mbvable section of a bridge, which nmy be raised up or turned to one side, so as to admit the passage of vessels. Gildersleeve v. Railroad Co. (D. C.) 82 Fed. 760; Hughes v. Railroad Co.

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(C. C.) 18 Fed. 114 ; Railroad Co. v. Daniels, 90 Ga. 608, 17 S. E. 647.

2. A depression in the surface of the earth, In the nature of a shallow ravine or gulch, sometimes many miles in length, forming a channel for the escape of rain and melting snow draining into it from ei- ther side. Railroad Co. v. Sutherland, 44 Neb. 526, 62 N. W. 859.

DRAW, v. In old criminal practice.

To drag (on a hurdle) to the place of exe- cution. Anciently no hurdle was allowed, but the criminal was actually dragged along the road to the place of execution. A part of the ancient punishment of traitors was the being thus drawn. 4 Bl. Comm. 92, 377.

In mercantile law. To draw a bill of exchange is to write (or cause it to be writ- ten) and sign it.

In pleading, conveyancing, etc. TO

prepare a draft; to compose and write out in due form, as, a deed, complaint, petition, memorial, etc. Winnebago County State Bank v. Hustel, 119 Iowa, 115, 93 N. W. 70; Hawkins v. State, 28 Fla. 363, 9 South. 652.

In practice. To draw a jury is to select the persons who are to compose it, either by taking their names successively, but at haz- ard, from the Jury box, or by summoning them individually to attend the court. Smith v. State, 136 Ala. 1, 34 South. 168.

In fiscal law and administration. To take out money from a bank, treasury, or other depository in the exercise of a lawful right and in a lawful manner. “No money shall be drawn from the treasury but in consequence of appropriations made by law.” Const. U. S. art. 1, § 9. But to “draw a war- rant” is not to draw the money ; it is to make or execute the instrument which au- thorizes the drawing of the money. Brown v. Flelschner, 4 Or. 149.

5e apparatus — Carried into the 5th edition (1979).

## DRAWBACK.

In the customs laws, this term denotes an allowance made by the gov- ernment upon the duties due on imported merchandise when the Importer, Instead of selling it here, re-exports it ; or the refund- ing of such duties if already paid. This al- lowance amounts, in some cases, to the whole of the original duties; in others, to a part only.

A drawback is A device resorted to for en- abling a commodity affected by taxes to be ex- ported and sold in the foreign market on the same terms as if it had not been taxed at all. It differs in this from a bounty, that the latter enables a commodity to be sold for lets than its natural cost, whereas a drawback enables it to be sold exactly at its natural cost. Downs v.

U. S., 113 Fed. 144, 51 C. C. A. 100.

5e apparatus — Carried into the 5th edition (1979).

## DRAWEE.

A person to whom a bill of exchange is addressed, and who is request- ed to pay the amount of money therein mentioned.

5e apparatus — Carried into the 5th edition (1979).

## DRAWER.

The person making a bill of exchange and addressing it to the drawee. Stevenson v. Walton, 2 Smedes & M. (Miss.) 265 ; Winnebago County State Bank v. Hus-, tel, 119 Iowa, 115, 93 N. W. 70.

5e apparatus — Carried into the 5th edition (1979).

## DRAWING.

In patent law. A repre- sentation of the appearance of material ob- jects by means of lines and marks upon pa- per, card-board, or other substance. Ampt v. Cincinnati, 8 Ohio Dec. 628.

DRAWIiATGHES. Thieves ; robbers.

Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DRAYAGE.

A charge for the transpor- tation of property in wheeled vehicles, such as drays, wagons, and carts. Soule v. San Francisco Gaslight Co., 54 Cal. 242,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## DREIT-DREIT.

Droit-droit Double

right. A union of the right of possession: and the right of property. 2 Bl. Comm. 199.

DRENCHES, or DRENGES. In Saxon: law. Tenants in copit e. They are said to: be such as, at the coming of William the Conqueror, being put out of their estates, were afterwards restored to them, on their making it appear that they were the true owners thereof, and neither in auxilio or, consilio against him. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DRENGAGE.

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The tenure by which the drenches, or drenges, held their lands.

5e apparatus — Not carried into the 5th edition (1979).

## DRIFT.

In mining law. An under- ground passage driven horizontally along the course of a mineralized vein or approxi- mately so. Distinguished from “shaft,” which is an opening made at the surface and extending downward Into the earth vertically, or nearly so, upon the vein or in- tended to reach it ; and from “tunnel,” which is a lateral or horizontal passage un- derground intended to reach the vein or min- eral deposit, where drifting may begin. Jur- genson v. Diller, 114 Cal. 491, 46 Pac. 610, 55 Am. St. Rep. 83.

In old English law. A driving, especial- ly of cattle.

— Driftland, drofland, or dryfland. A

Saxon word, signifying a tribute or yearly pay- ment made by some tenants to the king, or their landlords, for driving their cattle through a manor to fairs or markets. Cowell.— Drifts of the forest. A view or examination of what cattle are in a forest, chase, etc., that it may be known whether it be surcharged or not; and whose the beasts are, and whether they are com- monable. These drifts are made at certain times in the year by the officers of the forest, when all cattle are driven into some pound or place inclosed, for the before-mentioned pur- poses, and also to discover whether any cattle of strangers be there, which ought not to com- mon. Manwood, p. 2, c. 15. — Driftway. A road or way over which cattle are driven. 1 Taunt. 279. Smith v. Ladd, 41 Me. 314.

5e apparatus — Not carried into the 5th edition (1979).

## DRIFT-STUFF.

This term signifies, not goods which are the subject of salvage, but

matters floating at random, without any known or discoverable ownership, which. If cast ashore, will probably never be reclaim- ed, but will, as a matter of course, accrue to the riparian proprietor. Watson v. Knowles, 13 R. I. 641.

5e apparatus — Carried into the 5th edition (1979).

## DRINCLEAN.

Sax. A contribution of tenants. In the time of the Saxons, towards a potation, or ale, provided to entertain the lord, or his steward. Cowell. See Ceb- visabix.

5e apparatus — Not carried into the 5th edition (1979).

## DRINKING-SHOP.

A place where in- toxicating liquors are sold, bartered, or de- livered to be drunk on the premises. Port- land v. Schmidt, 13 Or. 17, 6 Pac. 221.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Habakkuk 2:15, KJV]**

Woe unto him that giveth his neighbour drink, that puttest thy bottle to him, and makest him drunken

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also, that thou mayest look on their nakedness!

Why: Woe upon him who gives his neighbor drink and makes him drunken — the dram-shop keeper's trade judged.

## DRIP.

A species of easement or servi- tude obligating one man to permit the wa- ter falling from another man’s house to fall upon his own land. 3 Kent, Comm. 436.

5e apparatus — Carried into the 5th edition (1979).

## DRIVER.

One employed in conducting a coach, carriage, wagon, or other vehicle, with horses, mules, or other animals, or a bicycle, tricycle, or motor car, though not a street railroad car. See Davis v. Petrinovlch, 112 Ala. 654, 21 South. 344, 36 L. R. A. 615; Oen. St. Conn. 1902, | 2038; Isaacs v. Rail- road Co., 47 N. Y. 122, 7 Am. Rep. 418.

DROFDEN, or DROFDENNE. A grove or woody place where cattle are kept Jacob.

5e apparatus — Carried into the 5th edition (1979).

## DROFLAND.

Sax. A quit rent or year- ly payment, formerly made by some tenants to the king, or their landlords, for driving their cattle through a manor to fairs or markets. Cowell ; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## DROIT.

In French law. Right jus- tice, equity, law, the whole body of law ; al- so a right.

This term exhibits the same ambiguity which is discoverable In the German equiv- alent, “ recht ” and the English word “right.” On the one hand, these terms answer to the Roman “jus” and thus indicate law In the abstract, considered as the foundation of all rights, or the complex of underlying moral principles which impart the character of justice to all positive law, or give it an ethical content. Taken in this abstract sense, the terms may be adjectives, in which case they are equivalent to “Just," or nouns, in which case they may be paraphrased by the expressions “Justice,” “morality," or “equity.” On the other hand, they serve to point out a right; that is, a power, priv- ilege, faculty, or demand, inherent in one person, and incident upon another. In the latter signification, dtvit (or recht or right) is the correlative of “duty" or “obligation." In the former sense, it may be considered as opposed to wrong, injustice, or the absence of law. Droit has the further ambiguity that it is sometimes used to denote the existing body of law considered as one whole, or the sum total of a number of individual laws taken together. See Jus; Recht; Right.

— Droit d’aocessiom. That property which is acquired by making a new species out of the material or another. It is equivalent to the Roman “specificatio." — Droit d'auboine. A rule by which all the property of a deceased foreigner, whether movable or immovable, was confiscated to the use of the state, to the ex- clusion of his heirs, whether claiming ab intes- tato or under a will of the deceased. Finally abolished in 1819. Opel v. Shoup, 100 Iowa, 407, 69 N. W. 560, 37 L. R. A. 583 — Droit d’execution. The tight of a stockbroker to sell the

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securities bought by him for account of a client, if the latter does not accept delivery thereof. The same expression is also applied to the sale by a stockbroker of securities de- posited with him by his client, in order to guaranty the payment of operations for which the latter has given instructions. Arg. Fr. Merc. Law, 557.— Droit de brim. A right formerly claimed by the lords of the coasts of certain parts of France, to shipwrecks, by which not only the property, but the persons of those who were cast away, were confiscated for the prince who was lord of the coast. Oth- erwise called “droit de bris sur le naufrage.” This right prevailed chiefly in Bretagne, and was solemnly abrogated by Henry III. as duke of Normandy, Aquitaine, and Uuienne, in a charter granted A. D. 1226, preserved among the rolls at Bordeaux.— Droit do garde. In French feudal law. Right of ward. The guardianship of the estate and person of a noble vassal, to which the king, during his mi- nority. was entitled- Steph. Lect. 250.— Droit de Kite. In French feudal law. The duty in- cumbent on a roturier, holding lands within the royal domain, of supplying board and lodg- ing to the king and to his suite while on a royal progress. Steph. Lect. 351.— Droit de apreffe. In old French law. The right of sell- ing various offices connected with the custody of judicial records or notarial acts. Steph. Lect. 354. A privilege of the French kings. —Droit de moitrlse. In old French law. A charge payable to the crown by any one who, after having served his apprenticeship in any commercial guild or brotherhood, sought to be- come a master workman in it on his own ac- count. Steph, Lect 354.— Droit de prise. In French feudal law. The duty (incumbent on a roturier ) of supplying to the kixig on cred- it during a certain period, such articles of domestic consumption as might be required for the royal household. Steph. Lect. 351.— Droit de quint. In French feudal law. A relief payable by a noble vassal to the king as his seigneur, on every change in the ownership of his fief. Steph. Lect. 350.— Droit de suite. The right of a creditor to pursue the debtor’s property into the hands of third persons for the enforcement of his claim.— Droits etvlls. This phrase in French law denotes private rights, the exercise of which is independent of the status ( qualitd) of citizen. Foreigners enjoy them ; and the extent of that enjoyment is determined by the principle of reciprocity. Conversely, foreigners may be sued on contracts made by them in France. ' Brown.— Droit (erlt. In French law. (The written law.) The Roman civil law, or Corpus Juris Civilis. Steph. Lect. 130.— Droit international. In- ternational law*— Droit maritime. Maritime law. ■*

In old English law. Law; right; a writ of right. Co. Litt. 1586.

— Autre droit. The right of another.— Droit- close. An ancient writ, directed to the lord of ancient demesne on behalf of those of his tenants who held their lands and tenements by charter in fee-simple, in fee-tail, for life, or in

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dower. Fitxh. Nat. Brer. 23. — Droit eoamoa The common law. Litt. I 213 ; Co. Litt. 142a. -Droit-droit. A double right ; that is, the right of possession and the right of property. These two rights were, by the theory of our ancient law, distinct; and the above phrase was used to indicate the concurrence of both in one person, which concurrence was neces- sary to

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constitute a complete title to land. Mosley A Whitley. — Droits of admiralty. Rights or perquisites of the admiralty. A term applied to goods found derelict at sea. Ap- lied also to property captured in time of war y non-commissioned vessels of a' belligerent nation. 1 Kent, Comm. 86.

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Droit ne done pints qne solt de- mannde. The law gives not more than Is demanded. 2 Inst 286.

Droit ne poet pas morler. Right can- not die. Jenk. Cent. 100, case 95.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 89:14, KJV]**

Justice and judgment are the habitation of thy throne: mercy and truth shall go before thy face.

Why: Justice and judgment as the throne's foundation — droit in its highest register.

## DROITURAL.

Wbat belongs of right; relating to right ; as real actions are either droitural or possessory, — droitural when the plaintiff seeks to recover the property. Finch, Law, 257.

5e apparatus — Not carried into the 5th edition (1979).

## DA.

These were at first high ships of great burden, but afterwards those which we now call "men-of-war.” Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## DROP.

In Rigllsh practice. When the members of a court are equally divided on the argument showing cause against a rule nisi, no order is made, i. e„ the rule Is nei- ther discharged nor made absolute, and the rule is said to drop. In practice, there be- ing a right to appeal, it has been usual to make an order in one way, the Junior judge withdrawing his judgment Wharton.

5e apparatus — Carried into the 5th edition (1979).

## DROP-LETTER.

A letter addressed for delivery In the same city or district in which it is posted.

5e apparatus — Carried into the 5th edition (1979).

## DRV.

A thicket of wood in a valley. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

## DRUG.

The general name of substances used in medicine; any substance, vegetable, animal, or mineral, used in the composition or preparation of medicines. The term is also applied to

materials used in dyeing and in chemistry. See Collins v. Banking Co., 79 N. C. 281, 28 Am. Rep. 322 ; U. S. v. Merck, 66 Fed. 251, 13 C. C. A. 432 ; Cowl v. U. S. (C. C.) 124 Fed. 475; Insurance Co. v. Flem- ming, 65 Ark. 54, 44 S. W. 464, 39 L. R. A. 789, 67 Am. St Rep. 900 ; Gault v. State, 34 Ga 533.

5e apparatus — Carried into the 5th edition (1979).

## DRUGGIST.

A dealer in drugs ; one whose business is to sell drugs and medi- cines. In strict usage, this term is to be distinguished from “apothecary.” A drug- gist deals in the uncompounded medicinal substances; the business of an apothecary is to mix and compound them. But in Amer- ica the two words are used interchangeably, as the same persons usually discharge both functions. State v. Holmes, 28 - La. Ann. 767, 26 Am. Rep. 110; Hainline v. Com., 13 Bush (Ky.) 352; State v. Donaldson, 41 Minn. 74, 42 N. W. 781.

5e apparatus — Carried into the 5th edition (1979).

## DRUMMER.

A term applied to commer- cial agents who travel for wholesale mer- chants and supply the retail trade with goods, or take orders for goods to be ship- ped to the retail dealer. Robbins v. Shelby County Taxing Dist., 120 U. S. 489, 7 Sup. Ct 592, 30 L. Ed. 694 ; Singleton v. Fritsch, 4 Lea (Tenn.) 96; Thomas v. Hot Springs, 34 Ark. 557, 36 Am. Rep. 24 ; Strain v. Chi- cago Portrait Co. (C. C.) 120 Fed. 835.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Arthur Miller, Death of a Salesman, 1949]**

(paraphrase) Miller's Willy Loman — the traveling salesman whose samples and smile no longer open doors — is the American archetype of the 'drummer,' the commercial traveler the entry defines. (paraphrase)

Why: The entry: 'commercial agents who travel for wholesale merchants... or take orders for goods.' Loman is exactly that figure, in literature's most famous treatment.

## DRUNGARIUS.

In old European law. The commander of a drunpus, or band of soldiers. Applied also to a naval command- er. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DROVE.

A number of animals collected and driven together in a body ; a flock or herd of cattle in process of being driven; indefinite as to number, but Including at least several. Caldwell v. State, 2 Tex. App. 54 ; McConvill v. Jersey City, 39 N. J. Law, 43.

— Drove-road. In Scotch law. A road for driving cattle. 7 Bell. App. Cas. 43, 53, 57. A drift-road. Lord Brougham, Id.— Drove- stmuee. In Scotch law. A place adjoining a drove-road, for resting and refreshing sheep and cattle on their journey. 7 Bell, App. Cas. 53, 57.— Drover’s pass. A free pass given by a railroad company, accepting a drove of cat-

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tle for transportation, to the drover who ac- companies and cares for the cattle on the train. Railroad Co. v. Tanner, 100 Va. 379, 41 S. E. 721; Railway Co. v. Ivy, 71 Tex. 409, 9 S. W. 346, 1 L. R. A. 500, 10 Am. St. Rep. 758.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Howard Hawks, Red River, 1948]**

(paraphrase) Hawks' western is built around the great cattle drive — a drove of cattle driven overland to market — the screen's definitive image of the entry's 'flock or herd of cattle in process of being driven.' (paraphrase)

Why: The entry defines a drove as cattle 'in process of being driven.' Red River is genuinely about a cattle drive.

## DROWN.

To merge or sink. “In some cases a right of freehold shall drown in a chattel.” Co. Lltt. 266a, 321a.

5e apparatus — Not carried into the 5th edition (1979).

## DRUNGU8.

In old European law. A band of soldiers, {globus militum .) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## DRUNK.

A person is “drunk” when he is so far under the influence of liquor that his passions are visibly excited or his Judg- ment impaired, or when his brain is so far affected by potations of liquor that his in- telligence, sense-perceptions, Judgment, con- tinuity of thought or of ideas, speech, and co-ordination of volition with muscular ac- tion (or some of these faculties or process- es) are impaired or not under normal con- trol. State v. Pierce, 65 Iowa, 85, 21 N.

W. 195; Elkin v. Buschner (Pa.) 16 Atl.

183,

Sapp v. State, 116 Ga. 182, 42 S. E. Ring v. Ring, 112 Ga. 854, 38 S. E. State v. Savage. 89 Ala. 1, 7 South. 7 L. R. A. 426; Lewis v. Jones, 50

Barb. (N. T.) 667.

5e apparatus — Carried into the 5th edition (1979).

**[Hip-hop] — Hip-hop**

**[Beyoncé ft. Jay-Z, 'Drunk in Love', 2013]**

Lyric (hook): "Drunk in love." Black's defines 'drunk' as being so far under the influence of liquor that the passions are visibly excited or judgment impaired; the song takes that intoxicated state as its central image and title, the word appearing verbatim in the repeated hook.

Why: Added because the hook is verbatim-certain and the legal term names exactly the state the lyric invokes — intoxication as the song's governing condition. Genuine link, not wordplay: the entry's definition and the lyri...

## DRUNKARD.

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He is a drunkard whose habit it Is to get drunk; whose ebriety has

become habitual. The terms “drunkard” and “habitual drunkard” mean the same thing. Com. v. Whitney, 5 Gray (Mass.) 85; Gourlay y. Gourlay, 16 R. I. 705, 19 Atl. 142.

A “common” drunkard is defined by statute In some states as a person who has been convicted of drunkenness (or proved to have been drunk) a certain number of times within a limited period. State v. Kelly, 12 R. I. 535 ; State v. Flynn, 16 R. I. 10, 11 Atl. 170. Elsewhere the word “common” in this connection is understood as being equivalent to “habitual,” (State v. Savage, 89 Ala. 1, 7 South. 183, 7

L. R. A, 426; Com. v. MeXamee, 112 Mass. 286; State v. Ryan. 70 Wis. 676, 36 N. W. 823;) or perhaps as synonymous with “public," (Com. v. Whitney, 5 Gray [Mass.] 86.)

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**[Scripture] — Scripture**

**[Proverbs 20:1, KJV]**

Wine is a mocker, strong drink is raging: and whosoever is deceived thereby is not wise.

Why: Strong drink 'raging' and its deceived servant 'not wise' — the drunkard's condition in a proverb.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Burns, 'Tam o' Shanter,' 1790]**

(paraphrase) Burns' Tam o' Shanter — Tam riding home drunk from the pub, witnessing the witches' dance — is the classic verse portrait of the habitual drunkard. (paraphrase)

Why: The entry: 'He is a drunkard whose habit it is to get drunk.' Tam is literature's archetypal habitual drunk. EBRIETY left bare to avoid duplicating the note.

## DRUNKENNE8S.

In medical jurispru- dence. The condition of a man whose mind Is affected by the Immediate use of Intoxi- cating drinks ; the state of one who Is “drunk." See Dbunk.

5e apparatus — Not carried into the 5th edition (1979).

## DRY.

In the vernacular, this term means desiccated or free from moisture; but, in legal use, it signifies formal or nom- inal, without Imposing any duty or respon- sibility, or unfruitful, without bringing any profit or advantage. t

— Dry exchange. See Exchange. — Dry mortgage. One which creates a lien on land for the payment of money, but does not impose any personal liability upon the mortgagor, collateral to or over and above the value of the premises. Frowenfeld v. Hastings, 134 Cal. .128, 66 Pac. 178. — Dry-multures. In Scotch law. Com paid to the owner of a mill, wheth- er the payers grind or not— Dry rent. Rent- seck ; a rent reserved without a clause of distress.—Dry trust. A passive trust; one which requires no action on the part of the trustee beyond turning over money or property to the cestui quo trust. Bradford v. Robinson, 7 Iloust. (Del.) 29, 30 Atl. 670; Cornwell v. Wuiff, 148 Mo. 512, 50 S. W. 439, 45 L. R. A. 53. — Dry weight. In tariff laws, this term does not mean the weight of an article after desiccation in a kiln, but its air-dry weight as understood in commerce. U. S. v. Perkins, 66 Fed. 50, 13 C. C. A. 324.

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## DRY-CRJEFT.

Witchcraft; magic. Anc. Inst. Eng.

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**[Scripture] — Scripture**

**[Exodus 22:18, KJV]**

Thou shalt not suffer a witch to live.

Why: The law's own sentence upon witchcraft — the act the old English term names. [re-homed from 'DRY-CRAEFT' to 'DRY-CRJEFT' (OCR headword / parser-merge artifact)]

## DUARCHY.

A form of government where two reign Jointly.

Dui uxores eodem tempore habere non licet. It Is not lawful to have two wives at the same time. Inst. 1, 10, C; 1 Bl. Comm. 436.

5e apparatus — Not carried into the 5th edition (1979).

## DUBITAN8.

Doubting. Dobbin, J., dubitans. 1 Show. 364.

5e apparatus — Not carried into the 5th edition (1979).

## DUB IT ANTE.

Doubting. Is afiixed to the name of a judge, In the reports, to signi- fy that he doubted the decision rendered.

5e apparatus — Not carried into the 5th edition (1979).

## DUBITATU&.

It is doubted. A word frequently used In the reports to Indicate that a point is considered doubtful.

5e apparatus — Not carried into the 5th edition (1979).

## DUBITAVIT.

Doubted. Vaughan, C. J-, dubitavit. Freem. 150.

5e apparatus — Not carried into the 5th edition (1979).

## DUOAT.

A foreign coin, varying In value In different countries, but usually worth about $2.26 of our money.

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## DUGATUS.

In feudal and old English law. A duchy, the dignity or territory of a duke.

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## DUCES TECUM.

(Let. Bring with you.) The name of certain species of writs, of which the subpoena daces tecum is the most usual, requiring a party who Is summoned to appear in court to bring with him some doc- ument, piece of evidence, or other thing to be used or inspected by the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 45 — subpoenas, including the subpoena duces tecum]**

The 'bring with you' writ's modern procedural form is the federal subpoena for production of documents and things, governed by the federal subpoena rule.

Why: The entry defines the historical writ and names the subpoena duces tecum as its usual form; the rule is the genuine living procedural anchor for that form. Confident FRCP 45 is the real subpoena rule. Cited in the loo...

## DUCES TECUM LICET LANGUTDU8.

(Bring with you, although sick.) In practice. An ancient writ now obsolete, directed to the sheriff, upon a return that he could not bring his prisoner without danger of death, he being adeo languidus, (so sick ;) where- upon the court granted a habeas corpus in the nature of a duces tecum licet languidus. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DUCHY OF LANCASTER.

Those lands which formerly belonged to the dukes of Lancaster, and now belong to the crown in right of the duchy. The duchy is distinct from the county palatine of Lancaster, and includes not only the county, but also much territory at a distance from it, especially the Savoy In London and some land near West- minster. 3 Bl. Comm. 78.

—Duchy court of Lancaster. A tribunal of special jurisdiction, held before the chan- cellor of the duchy, or his deputy, concerning all matters of equity relating to lands holden of the crown, in right of the duchy of Lancas- ter; which is a thing very distinct from the county palatine, (which has also its separate chancery, for sealing of writs, and the like,) and comprises much territory which lies at a vast distance from it ; as particularly a very large district surrounded by the city of West- minster. The proceedings in this court are the same as were those on the equity side of the court of chancery, so that it seems not to be a court of record ; and, indeed, it has been holden that the court of chancery has a concurrent jurisdiction with the duchy court, and may take cognizance of the same causes. The ap- peal from this court lies to the court of appeal. Jud. Act 1873, I 18 ; 3 Bl. Comm. 78.

5e apparatus — Not carried into the 5th edition (1979).

## DUCKING-STOOL.

See Castioatobt.

5e apparatus — Carried into the 5th edition (1979).

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**DUCROERE.**

In French law. Guaran- ty ; equivalent to del credere, (which see.)

DUE. 1. Just; proper; regular; lawful; sufficient ; as in the phrases “due care,” “due process of law,” “due notice.”

2. Owing; payable; justly owed. That which one contracts to pay or perform to another; that which law or justice requires to be paid or done.

3. Owed, or owing, as distinguished from payable. A debt is often said to be due from

a person where he Is the party owing It, or primarily bound to pay, whether the time for payment has or has not arrived.

4. Payable. A bill or note Is commonly said to be due when the time for payment of It has arrived.

The word “due” always imports a fixed and settled obligation or liability, but with refer- ence to the time for its payment there is con- siderable ambiguity in the use of the term, as will appear from the foregoing definitions, the precise signification being determined in each case from the context. It may mean that the debt or claim in question .is now (presently or immediately) matured and enforceable, or that it matured at some time in the past and yet remains unsatisfied, or that It is fixed and cer- tain but the day appointed for its payment has not yet arrived. But commonly, and in the absence of any qualifying expressions, the word “due” is restricted to the first of these meanings, the second being expressed by the term “overdue,”, and the third by the word “payable.” See Feeser v. Feeser, 93 Md. 716, 50 Atl. 406; Ames v. Ames, 128 Mass. 277; Van Hook v. Walton, 28 Tex. 75; Leggett v. Bank, 24 N. Y. 286; Scudder v. Scudder. 10

N. J. Law, 345: Barnes v. Arnold, 45 App. Div. 314, 61 N. Y. Supp. 85 ; Yocum v. Allen, 58 Ohio St. 280, 50 N. E. 909; Gies v. Beeht- ner, 12 Minn. 284 (Gil. 183) ; Marstiller v. Ward. 52 W. Va. 74, 43 S. E. 178.

— Due care. Just, proper, and sufficient care, so far as the circumstances demand it; tin, absence of negligence. This term, as usually understood in cases where the gist of the ac- tion is the defendant’s negligence, implies not only that a party has not been negligent or careless, but that he has been guilty of no violation of law in relation to the subject- matter or transaction which constitutes the cause of action. Evidence that a party is guilty of a violation of law supports the issue of a want of proper care ; nor can it be doubted that in these and similar actions the aver- ment in the declaration of the use of due care, and the denial of it in the answer, properly and distinctly put in issue the legality of the con- duct of the party as contributing to the acci- dent or injury which forms the groundwork of the action.. No specific averment of the par- ticular unlawful act which caused or contrib- uted to produce the result complained of should, in Buch cases, be deemed necessary. See Ryan

V. Bristol, 63 Conn. 26, 27 Atl. 309 : Paden v. Van Blarcom, 100 Mo. App. 185, 74 S. W. 124; Joyner v. Railway Co., 26 S. C. 49, 1 S. E. 52; Nicholas v. Peck, 21 R. X. 404, 43 Atl. 1038: Railroad Co. v. Yorty, 158 111. 321, 42

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N. E. 64; Schmidt v. Sinnott, 103 111. 105; Butterfield v. Western R. Corp., 10 Allen (Mass.) 532, 87 Am. Dec. 678; Jones v. An- dover, 10 Allen (Mass.) 20.— Dae course of law. This phrase is synonymous with “due process of law,” or “the law of the land,” and the general definition thereof is “law in its regular course of administration through courts of justice ;” and, while not always necessarily confined to judicial proceedings, yet these words have such a signification, when used to desig- nate the kind of an eviction, or ouster, from real estate by which a party is dispossessed, as to preclude thereunder proof of a construc- tive eviction resulting from the purchase of a paramount title when hostilely asserted by the party holding it. See Adler v. Whithec’k, 44 Ohio St. 569, 9 N. E. 672; In re Dorsey, 7 Port. (Ala.) 404 ; 'Backus v. Shipherd. 11 Wend. (N. Y.) 635; Dwight v. Williams, 8 Fed. Cas. 187 — Due notice. No fixed rule can be established as to what shall constitute “due notice.” _ “Due” is a relative term, and roust be applied to each case in the exercise of the discretion of the court in view of the Bl.Law Dict.(2d Ed.)— 20

particular circumstances. Lawrence v. Bow- man, 1 McAll. 420, 15 Fed. Cas. 21 ; Slattery v. Doyle. 180 Mass. 27, 61 N. E. 264 ; Wilde v. Wilde, 2 Nev. 306.— Due process of law. Law in its regular course of administration through courts of justice. 3 Story, Const. 264, 661. “Due process of law in each particular case means such an exercise of the powers of the government as the settled maxims of law permit and sanction, and under such safe- guards for the protection of individual rights as those maxims prescribe for the class of cases to which the one in question belongs.” Cooley, Const. Lim. 441. Whatever difficulty may be experienced in giving to those terms a definition which will embrace every permissible exertion of power affecting private rights, and exclude such as is forbidden, there can be no doubt of their meaning when applied to judi- cial proceedings. They then mean a course of legal proceedings according to those rules and principles which have been established in our systems of jurisprudence for the enforcement and protection of private rights. To give such roceedings any validity, there must be a tri- unal competent by its constitution — that is, by the law. of its creation— to pass upon the sub- ject-matter of the suit ; and, if that involves merely a determination of the personal liability of the defendant, he must be brought within its jurisdiction by service of process within the state, or his voluntary appearance. Pennoyer v. Neff. 95 U. S. 733, 24 L. Ed. 565. Due pro- cess of law implies the right of the person af- fected thereby to be present before the tribunal which pronounces judgment upon the question of life, liberty, or property, in its most com- prehensive sense ; to be heard, by testimony or otherwise, and to have 'the right of controvert- ing, by proof, every material fact which bears on the question of right in the matter involved. If any question of fact or liability be conclu- sively presumed against him, this is not due process of law. Zeigler v. Railroad Co., 58 Ala. 599. These phrases in the constitution do not mean the general body of the law, com- mon and statute, as it was at the time the con- stitution took effect; for that would seem to deny the right of the legislature to amend or repeal the law. They refer to certain funda- mental rights, which that system of jurispru- dence, of which ours is a derivative, has always recognized. Brown v. Levee Com'rs, 50 Miss. 468. “Due process of law,” as used in the con- stitution, cannot mean less than a prosecution or

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suit instituted and conducted according to the prescribed forms and solemnities for as- certaining guilt, or determining the title to property. Embury v. Conner, 3 N. Y. 511, 517, 53 Am. Dec. 325; Taylor v. Porter, 4 Hill (N. Y.) 140, 40 Am. Dec. 274; Burch v. New- bury, 10 N. Y. 374. 397. And see. generally. Davidson v. New Orleans. 96 U. S. 104, 24

L. Ed. 616; Adler v. Whitbeck, 44 Ohio St. 539; Duncan v. Missouri, 152 U. S. 377. 14 Sup. Ct. 571, 38 L. Ed. 485; Cantini v. Tillman (C. C.) 54 Fed. 975: Griffin v.

Mixon, 38 Miss. 458; East Kingston v. Towle. 48 N. H. 57, 97 Am. Dec. 575. 2 Am. Rep. 174; Hallenbeck v. Hahn, 2 Neb. 377; Stuart v. Palmer, 74 N. Y. 191, 30 Am. Rep. 289 ; Bailey v. People. 190 III. 28, 60 N. E. 98, 54 L. R. A. 838, 83 Am. St. Rep. 116; Eames v. Savage. 77 Me. 221. 52 Am. Rep. 751 ; Brown v. New Jersey, 175 IT.

S. 172, 20 Sup. Ct 77, 44 L. Ed. 119; Ilagar v. Reclamation Dist.. Ill U. S. 701, 4 Sup. Ct. 063. 28 L. Ed. 569 ; Wynehamer v. People. 13 N. Y. 395; State v. Beswick, 13 R. I. 211, 43 Am. Rep. 26; In re Rosser, 101 Fed. 567, 41 C. C. A. 497.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. V, XIV § 1 — due process of law]**

The 'due process of law' expounded throughout this entry is the constitutional guarantee that no person shall be deprived of life, liberty, or property without due process of law.

Why: The entry gives the doctrine's content at length through treatises and cases (Story, Cooley, Pennoyer v. Neff); the footnote names the constitutional text every cited authority is construing. Confident in both citatio… [re-homed from 'DUE' to 'DUCROERE' (OCR headword / parser-merge artifact)]

## DUB-BHX.

A brief written acknowledg- ment of a debt. It is not made payable to order, like a promissory note. See Feeser

y. Feeser, 93 Md. 716, 50 Atl. 406 ; Marrigan v. Page, 4 Humph. (Tenn.) 247 ; Currier v. Lockwood, 40 Conn. 350, 16 Am. Rep. 40; Lee v. Balcom, 9 Colo. 216, 11 Pac. 74. See

I. O. U.

5e apparatus — Not carried into the 5th edition (1979).

## DUEL.

A duel is any combat with deadly weapons, fought between two or more per- sons, by previous agreement or upon a pre- vious quarrel. Pen. Code Cal. g 225; State v. Fritz, 133 N. C. 725, 45 S. E. 957; State v. Herriott, 1 McMul. (S. C.) 130; Bassett v. State, 44 Fla. 2, 33 South. 262; Davis v. Modem Woodmen, 98 Mo. App. 713, 73 S. W. 923.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 17:8-9, KJV]**

And he stood and cried unto the armies of Israel, and said unto them, Why are ye come out to set your battle in array? am not I a Philistine, and ye servants to Saul? choose you a man for you, and let him come down to me. If he be able to fight with me, and to kill me, then will we be your servants: but

if I prevail against him, and kill him, then shall ye be our servants, and serve us.

Why: Goliath's formal challenge to single combat — the scriptural archetype of the duel, terms stated before witnesses.

**[Humanity] — Humanity / Fiction & Film**

**[Stanley Kubrick, Barry Lyndon, 1975]**

(paraphrase) Kubrick's film stages the ritual with lethal formality — notably Barry's pistol duel with Lord Bullingdon — the screen's most famous image of combat with deadly weapons by previous agreement. (paraphrase)

Why: The entry defines a duel as combat with deadly weapons 'by previous agreement or upon a previous quarrel.' The film's duels are textbook instances.

## DUELLUM.

The trial by battel or judi- cial combat See Battel.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Walter Scott, Ivanhoe, 1819]**

(paraphrase) Scott's novel climaxes in a trial by combat — the accused Rebecca's champion meeting her accuser in the lists — the classic fictional treatment of judicial battel. (paraphrase)

Why: The entry: 'The trial by battel or judicial combat.' Ivanhoe's trial by combat is the canonical novelistic instance.

## DUES.

Certain payments ; rates or taxes. See Ward v. Josliu, 105 Fed. 227, 44 C. C.

A. 456; Warwick v. Supreme Conclave, 107 Ga. 115,- 32 S. B. 951 ; Whitman v. National Bank, 176 U. 8. 559, 20 Sup. Ct 477, 44 L. Ed. 587.

DUKE, in English law, is a title of no- bility, ranking immediately next to the Prince of Wales. It is only a title of dignity. Conferring it does not- give any domain, ter- ritory, or jurisdiction over the place whence the title is taken. Duchess, the consort of a duke. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## DUKE OF EXETER’S DAUGHTER.

The name of a rack in the Tower, so called after a minister of Henry VI. who sought to introduce it into England.

5e apparatus — Carried into the 5th edition (1979).

## DULOCRAOY.

A government where servants and slaves have so much license and privilege that they domineer. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## DULY.

In due or proper form or man- ner; according to legal requirements.

Regularly; upon a proper foundation, as distinguished from mere form. Robertson v. Perkins, 129 U. S. 233, 9 Sup. Ct 279, 32 L Ed. 686; Brownell v. Greenwich, 114 N.

Y. 518, 22 N. E. 24, 4 L. R. A. 685; Leth- bridge v. New York (Super. N. Y.) 15 N. Y. Supp. 562; Allen v. Pancoast 20 N. J. Law, 74; Van Arsdale v. Van Arsdale, 26 N. J. Law, 423; Dunning v. Coleman, 27 la. Ann. 48 ; Young v. Wright, 52 Cal. 410 ; White v. Johnson, 27 Or. 282, 40 Pac. 511, 50 Am. St. Rep. 726.

5e apparatus — Carried into the 5th edition (1979).

## DUM.

Lab While; as long as; until; upon condition that; provided that.

-Dm beae se cezierlt. While he shall conduct himself well ; during good behavior. Expressive of a tenure of office not dependent upon the pleasure of the appointing power, nor for a limited period, but terminable only upon the death or misconduct of the incumbent.— Dam ferret opus. While the work glows ; in the heat of action. 1 Kent, Comm. l2u. — Dam fait la prisons. In English law. A writ

which lay for a man who had aliened lands un- der duress by imprisonment to restore to him his proper estates. 2 Inst. 482. Abolished by St. 3 A 4 Wm. IV. c. 27.— Dam fait infra sstatem. (While he was within age.) In old English practice. A writ of entry which for- merly lay for an Infant after be had attained his full age, to recover lands which he had aliened in fee, in tail, or for life, during his infancy; and, after his death, his heir bad the same reme- dy. Reg. Orig. 2286; Fitzh. Nat. Brev. 192, G; Litt | 466; Co. Litt. 2476.— Dam non fait eompos mentis. The name of a writ which the heirs of a person who was non oomos mentis, and who aliened his lands, might

ave sued out to restore him to his rights. Abolished by 3 & 4 Wm. IV. c. 27.— Dam re- eena fait m&leficiam. While the offense was fresh. A term employed in the old law of appeal of rape. Bract fol. 147.— Dam sola. While Role, or single, bum sola fuerit, while she shall remain sole. Dum sola et casta vix- erit, while she lives single and chaste. Words of limitation in old conveyances. Co. Litt. 235a. Also applied generally to an unmarried woman in connection with something that was or might be done during that condition.

5e apparatus — Not carried into the 5th edition (1979).

## DUMB.

One who cannot speak ; a person who is mute.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 4:11, KJV]**

And the LORD said unto him, Who hath made man's mouth? or who maketh the dumb, or deaf, or the seeing, or the blind? have not I the LORD?

Why: The LORD names the dumb among those His own hand makes — the condition the entry defines, from the Maker's mouth.

**[Humanity] — Humanity / Fiction & Film**

**[Arthur Penn, The Miracle Worker, 1962]**

(paraphrase) Penn's film tells of Helen Keller — deaf, blind, and mute — and Annie Sullivan's breaking through to her: the screen's most famous portrait of muteness and its overcoming. (paraphrase)

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Why: The entry: 'One who cannot speak; a person who is mute.' The film centers on a mute (and deaf-blind) child's acquisition of language.

## DUMB-BIDDIWG.

In sales at auction, when the minimum amount which the owner will take for the article is written on a piece of paper, and placed by the owner under a candlestick, or other thing, and it is agreed that no bidding shall avail unless equal to that this is called “dumb-bldding.” Bab. Auct 44.

5e apparatus — Not carried into the 5th edition (1979).

## DUMHODO.

Provided; provided that A word of limitation in the Latin forms of conveyances, of frequent use in introducing a reservation ; as in reserving a rent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DUN.

A mountain or high open place. The names of places ending in dun or don were either built on hills or near them in open places.

5e apparatus — Carried into the 5th edition (1979).

## DUNA.

In old records. A bank of earth cast up ; the side of a ditch. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DUNGEON.

Such an under-ground pris- on or cell as was formerly placed in the strongest part of a fortress; a dark or sub- terraneous prison.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 38:6, KJV]**

Then took they Jeremiah, and cast him into the dungeon of Malchiah the son of Hammelech, that was in the court of the prison: and they let down Jeremiah with cords. And in the dungeon there was no water, but mire: so Jeremiah sunk in the mire.

Why: Scripture's own dungeon — the prophet let down with cords into mire — the thing the entry defines, in its biblical instance.

**[Humanity] — Humanity / Fiction & Film**

**[Alexandre Dumas, The Count of Monte Cristo, 1844]**

(paraphrase) Dumas' Edmond Dantes endures fourteen years in the sea-fortress dungeon of the Chateau d'If — literature's archetypal 'dark or subterraneous prison.' (paraphrase)

Why: The entry defines the dungeon as an underground prison 'in the strongest part of a fortress.' The Chateau d'If is the textbook fictional instance.

## DUNIO.

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A double; a kind of base coin less than a farthing.

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## DUNNAGE.

Pieces of wood placed against the sides and bottom of the bold of a vessel, to preserve the cargo from the effect of leakage, according to its nature and qual- ity. Abb. Shipp. 227.

There is considerable resemblance between dunnage and ballast. The latter is used for trimming the ship, and bringing it down to a draft of water proper and safe for sailing. Dunnage is placed under the cargo to keep it from being wetted by water getting into the hold, or between the different parcels to

keep them from bruising and Injuring each other. Great Western Ins. Co. v. Thwlng, 13 Wall. 674, 20 L. Ed. 607 ; Richards v. Han- sen (C. C.) 1 Fed. 66.

5e apparatus — Carried into the 5th edition (1979).

## DUNSET8.

People that dwell on hilly places or mountains. Jacob.

Dno non pomrnt in solldo niuw rent possidere. Two cannot possess one thing In entirety. Co. Lltt. 868.

Dno sunt instrument* ad onuses res ant eonfirmandaa ant impngnandas, ra- tio et anthoritas. There are two instru- ments for confirming or Impugning all things, — reason and authority. 8 Coke, 16.

5e apparatus — Not carried into the 5th edition (1979).

## DUODECEMVIRALE JUDICIUM.

The

trial by twelve men, or by jury. Applied to juries de medietate lingua. Mol. de Jure Mar. 448.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. VI, VII — trial by jury]**

The trial by jury named by this Latin term is preserved in American law by the Bill of Rights' jury-trial guarantees in criminal and civil cases.

Why: The entry names the institution in one line; the amendments are its genuine constitutional anchor — why the term matters in American law. Confident in these citations. Analogous treatment to DUCES TECUM: historical fo...

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, Twelve Angry Men, 1957]**

(paraphrase) Lumet's film — twelve jurors deliberating a murder verdict in a single room — is the screen's definitive image of 'the trial by twelve men, or by jury.' (paraphrase)

Why: Headword as parsed. The entry is literally the trial by twelve men. The film is genuinely about that institution in action.

## DUODECIMA MANUS.

Twelve hands. The oaths of twelve men. Including himself, by whom the defendant was

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allowed to make bis law. 8 BL Comm. 343.

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## DUODENA.

In old records. A jury of twelve men. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## DUODENA  MANU.

A dozen bands, i. e., twelve witnesses to purge a criminal of an offense.

Dnomnt in solldnnt dominium vel pos- sessio esse non potest. Ownership or pos- session In entirety cannot be in 'two persons of the same thing. Dig. 13, 6, 6, 15 ; Mack- eld. Rom. Law, | 245. Bract fol. 286.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The scriptural law of witnesses — a matter established at the mouth of witnesses — the root of compurgation by oath-helpers.

## DUPLA.

In the civil law. Double the price of a thing. Dig. 21, 2, 2.

5e apparatus — Not carried into the 5th edition (1979).

## DUPLEX  QUERELA.

A double com- plaint An ecclesiastical proceeding, which is In the nature of an appeal from an ordi- nary's refusal to institute, to his next Im- mediate superior; as from a bishop to the archbishop. If the superior adjudges the cause of refusal to be Insufficient, he will grant Institution to the appellant Phlllim. Ecc. Law, 440.

5e apparatus — Not carried into the 5th edition (1979).

## DUPLICATE.

When two written docu- ments are substantially alike, so that each might be a copy or transcript from the other, while both stand on the same footing as original instruments,- they are called “dupli- cates.” Agreements, deeds, and other docu- ments are frequently executed in duplicate, In order. that each party may have an orig- inal In his possession. State v. Graffam. 74 Wls. 643, 43 N. W. 727; Grant v. Griffith, 89 App. Dlv. 107, 56 N. Y. Supp. 791 ; Trust Co. v. Codington County, 9 S. D. 159, 68 N.

W. 314; Nelson v. Blakey, 54 Ind. 36.

A duplicate is sometimes defined to be the "copy” of a thing; but, though generally a copy, a duplicate differs from a mere copy, in having all the validity of an original. Nor, it seems, need it be an exact copy. Defined also to be the “counterpart” of an instrument; but In indentures there is a distinction between counterpart* executed by the several parties re-

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spectively, each party affixing his or her seal to only one counterpart, and duplioate original*, each executed by all the parties. Toms v. Cuming, 7 Man. & G. 91, note. The old in- dentures, charters, or chirographs seem to have had the character of duplicates. Burrill.

The term Is also frequently used to signify a new original, made to take the place of an Instrument that has been lost or destroyed, and to have the same force and effect Ben- ton v. Martin, 40 N. Y. 347.

In English law. The certificate of dis- charge given to an Insolvent debtor who takes the benefit of the act for the relief of Insolvent debtors.

The ticket given by a pawnbroker to the pawner of a chattel.

—Duplicate taxation. The same as "double” taxation. See Double.— Duplicate will. A term used in England, where a testator executes two copies of his will, one to keep bimself, and the other to be deposited with another person. Upon application for probate of a duplicate will, both copies must be deposited in the registry of the court of probate.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 31:18, KJV]**

And he gave unto Moses, when he had made an end of communing with him upon mount Sinai, two tables of testimony, tables of stone, written with the finger of God.

Why: The two tables — twin originals of one instrument, both 'written with the finger of God' — duplicate originals in scripture's own form.

## DUPLICATE).

In the civil law. The defendant’s answer to the plaintiff’s replica- tion; corresponding to the rejoinder of the common law.

Duplicationem possibilitatis lex nou patitur. The law does not allow the doub- ling of a possibility. 1 Rolle, 321.

5e apparatus — Not carried into the 5th edition (1979).

## DULPEX VALOR MARITAGH.

In old

English law. Double the value of the mar- riage. While an Infant was in ward, the guardian had the power of tendering him or her a suitable match, without disparagement, which if the Infants refused, they forfeited the value of the marriage to their guardian, that la, so much as a jury would assess or any one would give to the guardian for such an alliance; and, if the infants married themselves without the guardian's consent, they forfeited double the value of the mar- riage. 2 BL Comm. 70; Lltt i 110; Co. Utt 826.

5e apparatus — Not carried into the 5th edition (1979).

## DUPLICATUM JUS.

Double right Bract fol. 2836. See Dboit-Dboit.

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## DUPLICITY.

The technical fault In pleading, of uniting two or more causes of action In one count In a writ or two or more grounds of defense in one plea, or two or more breaches In a replication, or two or more offenses in the same count of an In- dictment Tucker v. State, 6 Tex. App. 253 ; Waters v. People, 104 111. 547 ; Mullln v. Blumenthal, 1 Pennewill (Del.) 476, 42 Atl. 175; Devlno v. Railroad Co., 63 Vt. 98, 20 Atl. 953 ; Tucker v. Ladd, 7 Cow. (N. Y.) 452.

DUPLY, ». (From Lot. duplicotio, q. v.) In Scotch pleading. The defendant’s answer to the plaintiff’s replication.

5e apparatus — Carried into the 5th edition (1979).

## DUPLY, 17.

In Scotch pleading. To re- join. “It is dvplyed by the panel.” 3 State Trials, 471.

5e apparatus — Not carried into the 5th edition (1979).

## DURANTE.

Lat During. A word of limitation In old conveyances. Co. Lltt. 2346.

— 'Durante absentia. During absence. In some jurisdictions, administration of a dece- dent’s estate is said to be granted durante ab- sentia in cases where the absence of the proper proponents of the will, or of an executor, delays or imperils the settlement of the estate.— Du- rante bene plaolto. - During good pleasure. The ancient tenure of English judges was du- rante bene placito. 1 Bl. Comm. 267, 342.— Durante xninore state. During minority. 2 Bl. Comm.'S03; 5 Coke, 29, 30. Words taken from the old form of letters of administration. 5 Coke, u6i supra.— Durante vidultate. During widowhood. 2 Bl. Comm. 124. Du- rante casta vidvitate, during chaste widowhood. 10 East, 520.— Durante virgin! tate. During virginity, (so long as she remains unmarried.) — Durante vita. During life.

5e apparatus — Not carried into the 5th edition (1979).

## DURBAR.

In India. A court, audience, or levee. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## DURESS, 17.

To subject to duress. A word used by Lord Bacon. “If the party duressed do make any motion,” etc. Bac. Max. 89, reg. 22.

DURESS, n. Unlawful constraint exer- cised upon a man whereby he is forced to do some act against his will. It may be either “duress of imprisonment," where the person is deprived of his liberty in order to force him to compliance, or by violence, beating, or other actual injury, or duress per minus, con- sisting in threats of imprisonment or great physical injury or death. Duress may also include the same injuries, threats, or re- straint exercised upon the man’s wife, child, or parent. Noble v. Enos, 19 Ind. 78 ; Bank v. Sargent, 65 Neb. 594, 91 N. W. 597, 59 L.

R. A. 296 ; Pierce v. Brown, 7 Wall. 214, 19

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L. Ed. 134; Galusha v. Sherman, 105 Wis. 263, 81 N. W. 495, 47 L. R. A. 417; Radich v. Hutchins, 95 U. S. 213, 24 L. Ed. 409; Rollings v. Cate, 1 Helsk. (Tenn.) 97; Joan- nin v. Ogilvie, 49 Minn. 564, 52 N. W. 217, 16 L. R. A. 376, 32 Am. St. Rep. 581 ; Burnes v. Burnes (C. C.) 132 Fed. 493.

Duress consists in any illegal imprison- ment, or legal imprisonment used for an ille- gal purpose, or threats of bodily or other harm, or other means amounting to or tend- ing to coerce the will of another, and actu- ally inducing him to do an act contrary to bis free will. Code Ga. 1882, g 2637.

By duress, in its more extended sense, is meant that degree of severity, either threatened or impending or actually inflicted, which is sufficient to overcome the mind ai.ti will of a person of ordinary firmness. Duress per minas is restricted to fear of loss of life, or of may- hem, or loss of limb, or other remediless harm

to the person. Fellows v. School Diet., 39 Me. 559.

—Duress of imprisonment. The wrongful imprisonment of a person, or the illegal re- straint of his liberty, in order to compel him to do some act. 1 Bl. Comm. 130, 131, 136, 137; 1 Steph. Comm. 137 ; 2 Kent, Comm. 453.— Duress per mines. Duress by threats. The use of threats and menaces to compel a person, by the fear of death, or grievous bodily barm, as mayhem or loss of limb, to do some lawful act, or to commit a misdemeanor. 1 Bl. Comm. 130; 4 Bl. Comm. 30; 4 Steph. Comm. 83. See Metus.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Philemon 1:14, KJV]**

But without thy mind would I do nothing; that thy benefit should not be as it were of necessity, but willingly.

Why: Paul refuses a benefit extracted 'of necessity' rather than 'willingly' — the anti-duress principle: a constrained act is no free act. [re-homed from 'DURESS' to 'DURESS, 17' (OCR headword / parser-merge artifact)]

**[Humanity] — Humanity / Fiction & Film**

**[Jim Sheridan, In the Name of the Father, 1993]**

(paraphrase) Sheridan's film dramatizes the Guildford Four's coerced confessions — convictions extracted by unlawful constraint, later overturned — the screen's most famous treatment of duress in the criminal process. (paraphrase)

Why: Headword as parsed ('DURESS, 17'). The entry defines duress as 'unlawful constraint exercised upon a man.' The film is about confessions produced by exactly that. DURESSOR left bare to avoid duplicating the note.

## DURESSOR.

One who subjects another to duress ; one who compels another to do a thing, as by menace. Bac. Max. 90, reg. 22.

5e apparatus — Not carried into the 5th edition (1979).

## DURHAM.

A county palatine in Eng- land, the Jurisdiction of which was vested in the Bishop of Durham until the statute 6 & 7 Wm. IV. c. 19, vested it as a separate franchise and royalty in the

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crown. The ju- risdiction of the Durham court of pleas was transferred to the supreme court of Judica- ture by the judicature act of 1873. 1

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## DURSLEY.

In old English law. Blows without wounding or bloodshed; dry blows. Blount _ ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## DUSTUCK.

A term used in Hlndostan for a passport permit or order from the English East Indian Company. It generr ally meant a permit under their seal exempt- ing goods from the payment of duties. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## DUTCH AUCTION.

See Auction.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## DUTIES.

In its most usual signification this word is the synonym of imposts or cus- toms ; but it is sometimes used in a broader sense, as including all manner of taxes, charges, or governmental impositions. Pol- lock v. Farmers' L. & T. Co., 158 U. S. 601, 15 Sup. Ct 912, 39 L. Ed. 1108; Alexander v. Railroad Co., 3 Strob. (S. C.) 595 ; Pacific Ins. Co. v. Soule, 7 Wall. 433, 19 L. Ed. 95; Cooley v. Board of Wardens, 12 How. 299, 13 L. Ed. 996; Blake v. Baker, 115 Mass. 188.

—Duties of detraction. Taxes levied upon the removal from one state to another of prop- erty acquired by succession or testamentary disposition. Frederickson v. Louisiana, 23 How, 445, 16 L. Ed. 577 ; In re Strobel's Estate, 5 App. Div. 621, 39 N. Y. Supp. 169.— Duties on imports. This term signifies not merely a duty on the act of importation, but a duty on the thing imported. It is not confined to a duty levied while the article is entering the country, but extends to a duty levied after it has entered the country. Brown v. Maryland, 12 Wheat. 437, 6 L. Ed. 678.

5e apparatus — Carried into the 5th edition (1979).

## DUTY.

In its use in jurisprudence, this word is the correlative of right. Thus, wherever there exists a right in any person, there also rests a corresponding duty upon

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some other person or upon all persons gener- ally. But it is also used, in a wider sense, to designate that class of moral obligations which lie outside the jural sphere; such, namely, as rest upon an imperative ethical basis, but have not been recognized by the law as within its proper province for pur- poses of enforcement or redress. Thus, grat- itude towards a benefactor Is a duty, but its refusal will not ground an action. In this meaning “duty” is the equivalent of "moral obligation,” as distinguished from a “legal obligation." See Kentucky v. Denni- son. 24 How. 107, 16 L. Ed. 717; Harrison v. Bush, 5 El. & Bl. 349.

As a technical term of the law. “duty” signifies a thing due ; that which is due from a person; that which a person owes to an- other. An obligation to do a thing. A word of more extensive signification than “debt,” although both are expressed by the same , Latin word “ debitum Beach v. Boynton, 26 Yt. 725, 733.

But in practice it is commonly reserved as the designation of those obligations of per- formance, care, or observance which rest up- on a person In an official or fiduciary capac- ity ; as the duty of an executor, trustee, man- ager, etc.

It also denotes a tax or impost due to the government upon the importation or expor- tation of goods.

-legal duty. An obligation arising from contract of the parties or the operation of the law. Riddell v. Ventilating Co., 27 Mont. 44, 69 Pac. 241. That which the law requires to be done or forborne to a determinate person or the public at large, correlative to a vested and coextensive right in such person or the public, and the breach of which constitutes negligence. Heaven v. Pender, 11 Q. B. Div. 506; Smith v. Clarke Hardware Co.. 100 Ga. 163, 28 S. E. 73, 39 L. R. A. 607 ; Railroad Co. v. Ballentine, 84 Fed. 935, 28 C. C. A. 572.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 12:13, KJV]**

Let us hear the conclusion of the whole matter: Fear God, and keep his commandments: for this is the whole duty of man.

Why: 'The whole duty of man' stated outright — duty as the entry's subject, in scripture's own phrase.

**[Humanity] — Humanity / Fiction & Film**

**[Cicero, De Officiis, 44 BCE]**

Cicero's De Officiis (On Duties) — the 44 BCE treatise on moral obligation, written as advice to his son — is the classical world's systematic treatment of duty as the entry defines it: obligations resting 'upon an imperative ethical basis.'

Why: The entry uses 'duty' in the wider sense of 'moral obligations which lie outside the jural sphere... rest upon an imperative ethical basis.' De Officiis is the canonical classical work on precisely that; date verified…

## DUUMVIRI.

(From duo, two, and viri, men.) A general appellation among the an- cient Romans, given to any magistrates elect- ed in pairs to fill any office, or perform any function. Braude.

Duumviri municipals were two annual magistrates in the towns and colonies, hav- ing

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judicial powers. Calvin.

Duumviri navales were officers appointed to man, equip, and refit the navy. Id.

5e apparatus — Not carried into the 5th edition (1979).

## DUX.

In Roman law. A leader or military commander. The commander of an army. Dig. 3, 2, 2, pr.

In feudal and old European law. Duke; a title of honor, or order of nobility. 1 Bl. Comm. 397; Crabb, Eng. Law, 236.

In later law. A military governor of a province. See Cod. 1, 27, 2. A military officer having charge of the borders or fron- tiers of the empire, called "dux limitis." Cod. 1, 49, 1, pr. At this period, tfTe word began to be used as a title of honor or dignity.

5e apparatus — Not carried into the 5th edition (1979).

## D. W. I.

In genealogical tables, a com- mon abbreviation for “died without issue.”

5e apparatus — Not carried into the 5th edition (1979).

## DWELL.

To have an abode ; to inhabit ; to live in a place. Gardener v. Wagner. 9 Fed. Cas. 1,154 ; Ex parte Blurner, 27 Tex. 736; Putnam v. Johnson, 10 Mass. 502; Ea- tontown v. Shrewsbury, 49 N\ J. Law, 188, 6 Atl. 319.

5e apparatus — Carried into the 5th edition (1979).

## DWELLING-HOUSE.

The house in which a man lives with his family; a resi- dence; the apartment or building, or group of buildings, occupied by a family as a place of residence.

Ia conveyancing. Includes all buildings attached to or connected with the house. 2 Hil. Real Prop. 338, and note.

Ia the law of burglary. A house in which the occupier and his family usually reside, or, in other words, dwell and lie In. Whart. Crim. Law, 357.

5e apparatus — Carried into the 5th edition (1979).

## DWELLING-PLACE.

This term Is not synonymous with a “place of pauper settle- ment” Lisbon v. Lyman, 49 N. H. 553.

Dwelling-place, or home, means some per- manent abode or residence, with intention to remain; and is not synonymous with "domi- cile,” as used in international law, but has a more limited and restricted meaning. Jef- ferson v. Washington, 19 Me. 293.

5e apparatus — Not carried into the 5th edition (1979).

## DYING DECLARATION.

Sec Decla- ration'.

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5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Rudolph Mate, D.O.A., 1950]**

(paraphrase) Mate's noir opens with a poisoned man walking into a police station to report his own murder — the dying declaration as plot engine: a statement made in the shadow of certain death. (paraphrase)

Why: The entry cross-refers to Declaration (the dying-declaration hearsay exception). The film's premise is literally a man delivering his own dying declaration to the authorities.

## DYING WITHOUT ISSUE.

At com- mon law this phrase imports an indefinite failure of issue, and not a dying without is- sue surviving at the time of the death of the first taker. But this rule has been changed in some of the states, by statute or decisions, and in England by St. 7 Wm. IV., and 1 Viet. c. 26, $ 29.

Tbe words “die without issue,” and "die with- out leaving issue,” in a devise of real estate, im- port an indefinite failure of issue, and not the failure of issue at the death of the first taker. And no distinction is to be made between the words "without issue” and “without leaving is- sue.” Wilson v. Wilson, 32 Barb. (N. Y.) 328; McGraw v. Davenport, 6 Port. (Ala.) 319.

In Connecticut, it has been repeatedly held that the expression “dying without issue,” and like expressions, have reference to the time of the death of the party, and not to an indefinite failure of issue. Phelps v. Phelps, 55 Conn. 359, 11 Atl. 596.

Dying without children imports not a failure of issue at any indefinite future period, but a leaving no children at the death of the legatee. Condict v. King, 13 N. J. Eq. 375.

DYKE-REED, or DYKE-REEVE. An

officer who has the care and oversight of the dykes and drains in fenny counties.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 25:5, KJV]**

If brethren dwell together, and one of them die, and have no child, the wife of the dead shall not marry without unto a stranger: her husband's brother shall go in unto her, and take her to him to wife, and perform the duty of an husband's brother unto her.

Why: Dying 'and have no child' is the very trigger of the levirate law — the scriptural consequence of dying without issue.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Macbeth, c. 1606]**

'No son of mine succeeding.' — Macbeth, on the 'fruitless crown' and 'barren sceptre' the witches have given him: kingship with no heir to take it.

Why: Verbatim quote verified (Act 3, Scene 1). The entry concerns failure of issue; Macbeth's lament is the canonical dramatic expression of dying without an heir.

## DYSNOMY.

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Bad legislation; the enact- ment of bad laws.

DYSPAREUlflA. In medical Jurispru- dence. Incapacity of a woman to sustain the act of sexual Intercourse except with great difficulty and pain.

5e apparatus — Not carried into the 5th edition (1979).

## DYSPESIA.

A state of the stomach in which its functions are disturbed, without the presence of other diseases, or when, If other diseases are present, they are of minor Importance. Dungl. Med. Diet.

5e apparatus — Not carried into the 5th edition (1979).

## DYVOUR.

In Scotch law. A bankrupt.

— Dyronr'i habit. In Scotch law. A habit which debtors who are set free on a eetiic bonorum are obliged to wear, unless in the sum- mons and process of oettio it be libeled, sus- tained, and proved that the bankruptcy proceeds from misfortune. And bankrupts are condemn- ed to submit to the habit, even where no suspi- cion of fraud lies against them, if they have been dealers in an illicit trade. Brsk. Prin. 4, 3, 13.

E

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**[Scripture] — Scripture**

**[Deuteronomy 15:1-2, KJV]**

At the end of every seven years thou shalt make a release. And this is the manner of the release: Every creditor that lendeth ought unto his neighbour shall release it; he shall not exact it of his neighbour, or of his brother; because it is called the LORD's release.

Why: The LORD's release — every creditor releasing what is owed — the scriptural bankruptcy discharge.

# E

## E.

Ai an abbreviation, this letter may ■tand for “Exchequer,” "English, " “Edward,” “Equity,” “East,” “Eastern,” “Easter," or “Ecclesiastical.”

5e apparatus — Not carried into the 5th edition (1979).

## E.

A Latin preposition, meaning from, out of, after, or according. It occurs in many Latin phrases; but (in this form) only before a consonant When the Initial of the following word is a vowel, ea is used.

— E contra. From the opposite; on the con- trary.—® eonrerso. Conversely. On the oth- er hand; on the contrary. Equivalent to e contra. — E am gratia. Out of mere grace or favor.—® plurlbus unum. One out of many. The motto of the United States of America.

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## E. G.

An abbreviation of exempli gra- tia. For the sake of an example.

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## EA.

Sax. The water or river; also the mouth of a river on the shore between high and low water-mark.

Ea eat aeetplenda intcrpretatio, qase vitio caret. That interpretation is to be re- ceived [or adopted] which is free from fault [or wrong.] The law will not intend a wrong. Bac. Max. 17, (In reg. 3.)

5e apparatus — Carried into the 5th edition (1979).

## EA INTENTIONS.

With that intent Held not to make a condition, but a confi- dence and trust. Dyer, 1386.

Ea qtuB, oommcndandl causa, in ven- dlttonibua dieuntur, si palam appareaat, vendltorem non obllgant. Those things which are said on sales, in the way of com- mendation, if [the qualities of the thing sold] appear openly, do not bind the seller. Dig. 18, 1, 43, pr.

Ea qnss dari Lmpossiblla sunt, vel qua in mum nature non sunt, pro non ad> jeetis habentur. Those things which are impossible to be given, or which are not in the nature of things, are regarded as not added, [as no part of an agreement.] Dig. 50, 17, 135.

Ea qua in curia nostra rite acta sunt debit* executioni demandari debent. Co.

Litt. 289. Those things which are properly transacted in our court ought to be commit- ted to a due execution.

Ea qua raro aocidunt non temere in agendia negotiis oomputantur. Those things which rarely happen are not to be taken into account in the transaction of busi- ness, without sufficient reason. Dig. 56, 17, 64.

5e apparatus — Not carried into the 5th edition (1979).

## EACH.

A distributive adjective pronoun, which denotes or refers to every one of the

persons or things mentioned; every one of two or more persons or things, composing the whole, separately considered. The effect of this word, used in the covenants of a bond, is to create a several obligation. Sei- ler v. State, 160 Ind. 605, 67 N. E. 448; Knickerbocker v. People, 102 111. 233; Costi- gan v. Lunt, 104 Mass. 219.

Eadem cauaa dlversis rationibus co- ram Judleibus ecoleaiaaticis ct secular!- bus ventilatur. 2 Inst. 622. The same cause is argued upon different principles be- fore ecclesiastical and secular Judges.

Eadem est ratio, eadem cat lex. The

same reason, the same law. Charles Biver Bridge v. Warren Bridge, 7 Pick. (Mass.) 493.

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Eadem mens prassumltur regis qua est juris et qua esse debet, prasertim in dubiis. Hob. 154. The mind of the sovereign Is presumed to be coincident with that of the law, and with that which it ought to be, especially in ambiguous matters.

5e apparatus — Carried into the 5th edition (1979).

## EAGLE.

A gold coin of the United States of the value of ten dollars.

EALDER, or EALDING. In old SaXoU law. An elder or chief.

E ALDERMAN, or EALD ORMAN. The

name of a Saxon magistrate; alderman; an- alogous to earl among the Danes, and sen- ator among the Romans. See Alderman.

5e apparatus — Not carried into the 5th edition (1979).

## EALDOR-BISCOP.

An archbishop.

EAXiDORBURG. Sax. The metropolis; the chief city. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## EALEHUS.

<Fr. eale, Sax., ale, and has, house.) An ale-house.

5e apparatus — Not carried into the 5th edition (1979).

## EALHORDA.

Sax. The privilege of assislng and selling beer. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## EAR GRASS.

In English law. Such grass which is upon the land after the mow- ing, until the feast of the Annunciation after. 3 Leon. 213.

5e apparatus — Not carried into the 5th edition (1979).

## EAR-MARK.

A mark put upon a thing to distinguish it from another. Originally and literally, a mark upon the ear; a mode of marking sheep and other animals.

Property is said to be ear-marked when It can be identified or distinguished from oth- er property of the same nature.

Money has no ear-mark, but it is an ordi- nary term for a privy mark made by any one on a coin.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## EAIU  WITNESS.

In the law of evidence. One who attests or can attest anything as heard 'by himself.

EARL, a title of nobility, formerly the highest In England, now the third, ranking between a marquis and a viscount, and cor* responding with the French “comte” and the German "graf." The title originated with the Saxons, and is the most ancient of the English peerage. William the Conqueror first made this title hereditary, giving it in fee to his nobles; and alloting them for the support of their state the third penny out of the sheriff’s court, issuing out of all pleas of the shire, whence they had their ancient title "shiremen.” At present the title is accom- panied by no territory, private or Judicial rights, but merely confers nobility and an hereditary seat in the' house of lords. Whar- ton.

—Earl marshal of England. A great officer of state who had anciently several courts un- der his jurisdiction, as the court of chivalry and the court of honor. Under him is the herald’s office, or college of arms. He was also a judge of the Marshalsea court, now abolished. This office is of great antiquity, and has been for several ages hereditary in the family of the ■Howards. 3 Bl. Comm. 68, 103 ; 3 Steph. Comm. 335, note.— Earldom. The dignity or jurisdiction of an earl. The dignity only re- mains now, as the jurisdiction has been given over to the sheriff. 1 Bl. Comm. 339.

5e apparatus — Not carried into the 5th edition (1979).

## EARLES-PENNY.

Honey given In part payment. See Earnest.

5e apparatus — Not carried into the 5th edition (1979).

## EARNEST.

The payment of a part of the price of goods sold, or the delivery of part of such goods, for the purpose of binding the contract. Howe v. Hayward, 108 Mass. 54, 11 Am. Bep. 306.

A token or pledge passing between the par- ties, by way of evidence, or ratification of the sale. 2 Kent, Comm. 495, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-201(3)(c) — part payment / part performance exception to the statute of frauds]**

Earnest as part payment binding the sale lives on in the modern statute of frauds: where payment has been made and accepted (or goods received and accepted), the sale-of-goods contract is enforceable despite the writing requirement.

Why: The entry defines earnest's function (part payment binds the contract); the UCC provision is the genuine living rule giving that function legal effect under the statute of frauds. Confident this is the real UCC except…

**[Scripture] — Scripture**

**[Ephesians 1:14, KJV]**

Which is the earnest of our inheritance until the redemption of the purchased possession, unto the praise of his glory.

Why: The Spirit as 'earnest' — arrabon, part-payment binding the whole — the theological earnest IS the legal earnest.

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## EARNINGS.

This term is used to denote a larger class of credits than would be in- cluded in the term “wages.” Somers v. Keliher, 115 Hass. 165; Jenks v. Dyer, 102 Mass. 235.

The gains of the person derived from his services or labor without the aid of capital. Brown v. Hebard, 20 Wls. 330, 91 Am. Dec. 408 ; Hoyt v. White, 46 N. H. 48.

— Gross earnings and net earnings. The

gross earnings of a business or company are the total receipts before deducting expenditures. Net earnings are the excess of the gross earn- ings over the expenditures defrayed in pro- ducing them, and aside from and exclusive of capital laid out in constructing and equipping the works or plant. State v. Railroad Co., 30 Minn. 311, 15 N. W. 307 ; People v. Roberts, 32 App. Div. 113. 52 N. Y. Supp. 859; Cincin- nati, S. & C. R. R. Co. v. Indiana. B. & N. Ry. Co., 44 Ohio St. 287, 7 N. E. 139; Mobile &

O. R. Co. v. Tennessee, 153 U. S. 486, 14 Sup. Ct. 968. 38 L. Ed. 793 ; Union Pac. R. Co. v.

IT. S.. 99 U. S. 420, 25 L. Ed. 274 ; Cotting v. Railway Co.. 54 Conn. 156. 5 Atl. 851. — Sur- plus earnings of a company or corporation

means the amount owned by the company over and above its capital and actual liabilities. People v. Com'rs of Taxes, 76 N. Y. 74.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire. Go not from house to house.

Why: The labourer is worthy of his hire — the scriptural wage-principle, in Jesus' own mouth.

## EARTH.

Soil of all kinds, Including gravel, clay, loam, and the like, in distinction from the firm rock. Dickinson v. Pough- keepsie, 75 N. Y. 76.

5e apparatus — Carried into the 5th edition (1979).

## EASEMENT.

A right in the owner of one parcel of land, by reason of such owner- ship, to use the land of another for a special purpose not inconsistent with a general prop- erty in the owner. 2 Wasbb. Real Prop. 25.

A privilege which the owner of one adja- cent tenement hath of another, existing in respect of their several tenements, by which that owner against whose tenement the priv- ilege exists is obliged to suffer or not to do something on or in regard to his own land for the advantage of him in whose land the privilege exists. Termes de la Ley.

A private easement is a privilege, service, or convenience which one neighbor has of another, by prescription, grant, or necessary implication, and without profit; ns a way over his land, a gate-way, water-course, and the like. Kitch. 105; 3 Cruise, Dig. 484. And see

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Harrison v. Boring, 44 Tex. 267; Albright v. Cortrlght, 64 N. J. Law, 330, 45 Atl. 634, 48 L. R. A. 616. 81 Am. St. Rep. 504; Wynn v. Garland, 19 Ark. 23, 68 Am. Dec. 190; Wessels v. Colebank, 174 111. 618, 51 N. E. 639; Terminal Land Co. v. Muir, 136 Cal. 36, 68 Pac. 308; Stevenson v. Wal- lace, 27 Grat. (Va.) 87.

The land against which the easement or privi- lege exists is called the “servient” tenement, and the estate to which it is annexed the “dom- inant” tenement; and their owners are called respectively the “servient” and “dominant” owner. These terms are taken from the civil law.

Synonyms. At the present day, the distinc- tion between an “easement” and a “license” i* well settled and fulfy recognized, although it becomes difficult in some of the cases to dis- cover a substantial difference between them. An easement, it has appeared, is a liberty, priv- ilege, or advantage in land, without profit, and existing distinct from the ownership of the soil; and it has appeared, also, that a claim for an easement must be founded upon a deed or writing, or upon prescription, which sup- poses one. It is a permameut interest in an- other’s land, with a right to enjoy it fully and without obstruction. A license, on the other hand, is a bare authority to do a certain act or series of acts upon another’s land, without pos- sessing any estate therein; and, it being found- ed in personal confidence, it is not assignable, and it is gone if the owner of the land who gives. the license transfers his title to another, or if either party die. Cook v. Railroad Co., 40 Iowa, 456 ; Nunnelly v. Iron Co.. 94 Tenn. 397, 29 8. W. 361. 28 L. R. A. 421; Baldwin v. Taylor, 166 Pa. 507, 31 Atl. 250; Clark v. Glidden, 60 Vt. 702. 15 Atl. 358; Asher v. Johnson. 118 Ky. 702, 82 S. W. 300.

Classification. Easements are classified as affirmative or negative; the former being those where the servient estate must permit some- thing to be done thereon, (as to pass over it, or to discharge water upon it;) the latter being those where the owner of the servient estate is

prohibited from doing something otherwise law- ful upon his estate, because it will affect the dominant estate, (as interrupting the light and air from the latter by building on the former.) 2 Washb. Real Prop. 301. Equitable L. Assur. Soc. v. Brennan (Sup.) 24 N. Y. Supp. 788; Pierce v. Keator, 70 N. Y. 447, 26 Am. Rep. 612. They are also either continuous or dis- continuous. An easement of the former kind is one that is self-perpetuating, independent of human intervention, as, the flow of a stream, or one which may be enjoyed without any act on the part of the person entitled thereto, such as a spout which discharges the water whenever' it rains, a drain by which surface water is car- ried off, windows which admit light and air, and the like. Lampman v. Milks, 21 N. Y. 505; Bonelli v. Blakemore, 66 Miss. 136, 5 South. 228. 14 Am. St. Rep. 550 ; Providence Tool Co. v. Engine Co., 9 R. I. 571. A continuous ease- ment is sometimes termed an “apparent” ease- ment, and defined as one depending on some artificial structure upon, or natural conforma- tion of, the servient tenement, obvious and rmanent, which constitutes the easement or the means of enjoying it. Fetters v. Hum- phreys, 18 N. J. Eq. 260 ; Larsen v. Peterson, 53 N. J. Eq. 88. 30 Atl. 1094; Whalen v. Land Co.. 65 N. J. Law, 206, 47 Atl. 443. Discon- tinuous, non-continuous, or

non-apparent ease- ments are those the enjoyment of which can be had only by the interference of man, as, a right of way or a right to draw water. Outerbridge v. Phelps, 45 N. Y. Super. Ct. 570: Lampman v. Milks. 21 N. Y. 515. This distinction is derived from the French law. Easements are also classed as private or public, the former being an easement the enjoyment of which is restricted to one or a few individuals, while a public easement is one the right to the enjoy- ment of which is vested in the public generally or in an entire community; such ns an ease- ment of passage on the public streets and high- ways or of navigation on a stream. Kennelly v. Jersey City. 57 N. J. Law, 293, 30 Atl. 531, 26 L. R. A. 281; Nicoll v. Telephone Co., 62

N. J. Law, 733. 42 Atl. 583, 72 Am. St. Rep. 666. They may also be either of necessity or of convenience. The former is the case where the easement is indispensable to the enjoyment of the dominant estate; the latter, where the ease- ment increases the facility, comfort, or con- venience of the enjoyment of the dominant es- tate, or of some right connected with it. Ease- ments are again either appurtenant or in gross. An appurtenant easement is one which is at- tached to and passes with the dominant tene- ment as an appurtennnce thereof; while an easement in gross is not appurtenant to any es- tate in land (or not belonging to any person by virtue of his ownership of an estate in land) but a mere personal interest in, or right to use. the land of another. Cadwalader v. Bailey. 17

R. I. 495, 23 Atl. 20. 14 L R. A. 300; Pinkum v. Eau Claire, 81 Wis. 301, 51 N. W. 550; Stovall v. Coggins Granite Co., 116 Ga. 376, 42 S. E. 723.

— Equitable easements. The special ease- ments created by derivation of ownership of ad- jacent proprietors from a common source, with specific intentions as to buildings for certain purposes, or with implied privileges in regard to certain uses, are sometimes so called. TT. S. v. Peachy (D. C.) 36 Fed. 162.— Implied ease- ments. An implied easement is an easement resting upon the principle that, where the own- er of two or more adjacent lots sells a part thereof, he grants by Implication to the grantee all those apparent and visible easements which are necessary for the reasonable use of the prop- erty granted, which at the time of the grant are used by the owner of the entirety for the benefit of the part granted. Farley v. Howard, 33 Misc. Rep. 57. 68 N. Y. Supp. 159.— Inter- mittent easement. One which is usable or

used only at times, and not continuously. Eat- on v. Railroad Co., 51 N. H. 504, 12 Am. Rep. 147.— Qnasi easement. An "easement,” in the proper sense of the word, can only exist in respect of two adjoining pieces of land occupied by different persons, and can only impose a negative duty on the owner of the servient tenement. Hence an obligation on the owner of land to repair the fence between his and his neighbor's land is not a true easement, but is sometimes called a “quart easement.” Gale, Easem. 516; Sweet.— ^Secondary easement. One which is appurtenant to the primary or actual easement; every easement includes such “secondary easements," that is, the right to do such things as are necessary for the full enjoy- ment of the easement itself. Toothe v. Bryce. 50 N. J. Eq. 589, 25 Atl. 182; North Fork Water Co. v. Edwards, 121 Cal. 662, 54 Pac. 69.

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**[Scripture] — Scripture**

**[Leviticus 19:9, KJV]**

And when ye reap the harvest of your land, thou shalt not wholly reap the corners of thy field, neither shalt thou gather the gleanings of thy harvest.

Why: The gleaning right — the poor's lawful use of another's field — an easement in scripture's own form.

## EAST.

In the customs laws of the United States, the term “countries east of the Cape of Good Hope” means countries with which, formerly, the United States ordinarily car- ried on commercial intercourse by passing around that cape. Powers v. Comley, 101

U. S. 790, 25 L. Ed. 805.

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## EAST GREENWICH.

The name of a royal manor in the county of Kent, England ; mentioned In royal grants or patents, as de- scriptive of the tenure of free socage.

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## EAST INDIA COMPANY.

The East India Company was originally established for prosecuting the trade between England and India, which they acquired a right to carry on exclusively. Since the middle of the last century, however, the company's political af- fairs had become of more importance than their commerce. In 1858, by 21 & 22 Viet c. 106, the government of the territories of the company was transferred to the crown. Wharton.

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**[Humanity] — Humanity / Fiction & Film**

**[Gore Verbinski, Pirates of the Caribbean: At World's End, 2007]**

(paraphrase) The films' East India Trading Company — Cutler Beckett's chartered monopoly wielding fleets and private law — is pop culture's image of the great chartered company, fictionalized but instantly recognizable. (paraphrase)

Why: The entry defines the chartered trading company. The films' EITC is a fictionalized but genuine screen treatment of that institution; the note marks the fictionalization.

## EASTER.

A feast of the Christian church held in memory of our Saviour's resurrection. The Greeks and Latins call it “pascha,” (passover,) to which Jewish feast our Easter answers. This feast has been annually cele- brated since the time of the apostles, and is one of the most Important festivals in the Christian calendar, being that which regu- lates and determines the times of all the other movable feasts. Enc. Lond.

— E oxter-offerings, or Easter-dnes. In

English law. Small sums of money paid to the parochial clergy by the parishioners at Easter

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as a compensation for personal tithes, or the tithe for personal labor ; recoverable under 7 & 8 Wm. III. c. 6. before justices of the peace. — Easter term. In English law. One of the four terms of the courts. It is now a fixed term, beginning on the 15th of April and ending on the 8th of May in every year, though some- times prolonged so late as the 13th of May, under St. 11 Geo. IV. and 1 Wm. IV. c. .70. From November 2, 1875, the division of the le- gal year into terms is abolished so far as con- cerns the administration of justice. 3 Steph. Comm. 482-486; Mozley & Whitley.

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**[Scripture] — Scripture**

**[Mark 16:6, KJV]**

And he saith unto them, Be not affrighted: Ye seek Jesus of Nazareth, which was crucified: he is risen; he is not here: behold the place where they laid him.

Why: 'He is risen' — the resurrection the feast commemorates, announced at the tomb.

## EASTERLING.

A coin struck by Rich- ard II. which Is supposed to have given rise to the name of "sterling," as applied to Eng- lish money.

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## EASTERLY.

This wofd, when used alone, will be construed to mean “due east.” But that is a rule of necessity growing out of the indeflniteness of the term, and has no application where other words are used for the purpose of qualifying Its meaning. Where such Is the case, Instead of meaning “due east,” It means precisely what the quail* fylng word makes it mean. Fratt v. Wood- ward, 32 Cal. 227, 91 Am. Dec. 573; Scraper v. Pipes, 59 Ind. 164; Wlltsee v. Mill & Min. Co., 7 Ariz. 95, 00 Pac. 896.

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## EAST1NUS.

An easterly coast or coun- try.

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## EAT INDE SINE DIE.

In criminal practice. Words used on the acquittal of a defendant, that he may go thence without a day, i. e., be dismissed without any further continuance or adjournment.

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**[Scripture] — Scripture**

**[John 8:11, KJV]**

She said, No man, Lord. And Jesus said unto her, Neither do I condemn thee: go, and sin no more.

Why: 'Neither do I condemn thee: go' — acquittal and dismissal in Jesus' own sentence.

## EATING-HOUSE.

Any place where food or refreshments of any kind, not Including spirits, wines, ale, beer, or

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other malt liq- uors, are provided for casual visitors, and sold for consumption therein. Act Cong. July 13, 1866, f 9 (14 St. at Large, 118). And see Carpenter v. Taylor, 1 Hilt. (N. Y.) 195; State v. Hall, 73 N. 0. 253.

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## EAVES.

The edge of a roof, built so as to project over the walls of a house, in order that the rain may drop therefrom to the ground Instead of running down the wall. Center St. Church v. Machias Hotel Go., 51 Me. 413.

— Eaves -drip. The drip or dropping of water from the eaves of a house on the land of an ad- jacent owner; the easement of having the wa- ter so drip, or the servitude of submitting to such drip; the same as the atillicidium of the Roman law. See Stillicidium.

5e apparatus — Not carried into the 5th edition (1979).

## EAVESDROPPING.

In English crim- inal law. The offense of listening under walls or windows, or the eaves of a house, to hearken after discourse, and thereupon to frame slanderous and mischievous tales. 4 Bl. Comm. 168. It Is a misdemeanor at com- mon law, indictable at sessions, and punish- able by fine and finding sureties for good be- havior. Id. ; Steph. Crim. Law, 109. See State v. Pennington, 3 Head (Tenn.) 300, 75 Am. Dec. 771; Com. v. Lovett, 4 Clark (Pa.) 5; Seiden v. State, 74 Wis. 271, 42 N. W. 218, 17 Am. St Rep. 144.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:16, KJV]**

Thou shalt not go up and down as a talebearer among thy people: neither shalt thou stand against the blood of thy neighbour: I am the LORD.

Why: The talebearer prohibition — going up and down to gather and spread discourse — the eavesdropper's trade forbidden.

**[Humanity] — Humanity / Fiction & Film**

**[Francis Ford Coppola, The Conversation, 1974]**

(paraphrase) Coppola's film follows Harry Caul, a surveillance expert who records a conversation he was not meant to understand — the modern, technological heir of the entry's listener 'under walls or windows.' (paraphrase)

Why: The entry defines the common-law misdemeanor of listening under eaves 'to hearken after discourse.' The film is entirely about professional eavesdropping.

## EBB AND FLOW.

An expression used formerly in this country to denote the limits of admiralty Jurisdiction. See United States v. Aborn, 3 Mason, 127, Fed. Cas. No. 14,418 ; Hale v. Washington Ins. Co., 2 Story, 176, Fed. Cas. No. 5,916; De Lovlo v. Bolt 2 Gall. 398, Fed. Cas. No. 3.776; The Hine v. Trevor, 4 Wall. 562, 18 L. Ed. 451 ; The Eagle, 8 Wall. 15, 19 L. Ed. 365.

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, c. 1599]**

'There is a tide in the affairs of men, / Which, taken at the flood, leads on to fortune' — Brutus, urging action before the tide turns.

Why: Verbatim quote verified (Act 4, Scene 3). The entry is the old admiralty-jurisdiction phrase for the tidal limit; Shakespeare's Brutus uses the same tidal image — ebb and flow as the measure of opportunity.

## EBBA.

In old English law. Ebb. Bhha et fluctus; ebb and flow of tide; ebb and

flood. Bract fols. 255, 338. The time oc- cupied by one ebb and flood was anciently granted to persons essoined as being beyond sea, in addition to the period of forty days. See Fleta, lib. 6, c. 8, § 2.

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## EBDOMADARIUS.

In ecclesiastical law. An officer in cathedral churches who supervised the regular performance of divine service, and prescribed the particular duties of each person in the choir.

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## EBEREMORTH, EBEREMORS, EB- / E RE-MURDER.

See Abebeuubdbb.

5e apparatus — Not carried into the 5th edition (1979).

## EBR1ETY.

In criminal law and medical Jurisprudence. Drunkenness; alcoholic in- toxication. Com. v. Whitney, 11 Cush. (Mass.) 479.

Eoee mods minim, quod f ceminm fort breve regis, non aomlnando virum, oon- Junctum robore legia. Co. Litt 1326. Be- hold, Indeed, a wonder! that a woman has the king’s writ without naming her husband, who by law Is united to her.

5e apparatus — Not carried into the 5th edition (1979).

## ECCENTRICITY.

In criminal law and medical Jurisprudence. Personal or Individ- ual peculiarities of mind and disposition which markedly distinguish the subject from the ' ordinary, normal, or average types of men, but do not amount to mental unsound- ness or insanity. Ekiu v. McCracken, 11 Phila. (Pa.) 535.

5e apparatus — Carried into the 5th edition (1979).

## ECCHYMOSIS.

In medical Jurispru- dence. Blackness. It is an extravasation of blood by rupture of capillary vessels, and hence It follows contusion; but it may ex- ist, as In cases of scurvy and other morbfd conditions, without the latter. Ry. Med. Jur. 172.

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## ECCLESIA.

Lat. An assembly. A Chris- tian assembly; a church. A place of relig- ious worship. Spelman.

Ecclesla e celestes decimal solvere non debet. Cro. Eliz. 479. A church ought not to pay tithes to a church.

Eeelesia est domes manslonalis Omnl- potentis Del. 2 Inst. 164. The church Is the mansion-house of the Omnipotent God.

Ecclesla est Infra setatem et in ens- todla do mini regis, qni tenetnr jura et hssreditates ejssdem mass tenere et de- fendere. 11 Coke, 49. The church Is under age, and in the custody of the king, who Is bound to uphold and defend its rights and inheritances.

Ecclesla fnngltnr vice min oris | meli- orem oondltionem sum facers potest, jdeterlorem nequaqnam. Co. Litt 341. The church enjoys the privilege of a minor ;

It can make its own condition better, bat not worse.

EooleiU non morltnr, 2 Inst 3. The church does not die.

Beeleriae magis favendum est qtuun personas. Godol. Ecc. Law, 172. The church Is to be more favored than the par* son.

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**[Scripture] — Scripture**

**[Matthew 16:18, KJV]**

And I say also unto thee, That thou art Peter, and upon this rock I will build my church; and the gates of hell shall not prevail against it.

Why: 'I will build my church' — the ecclesia founded by Christ's own word.

## ECOLESLE BCTJLPTTTRA.

The Image or sculpture of a church In ancient times was often cut out or cast In plate or other metal, and preserved as a religious treasure or relic, and to perpetuate the memory of 'some fa- mous churches. Jacob.

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## ECCLESIAROH.

The ruler of a church.

ECCLESIASTIC, n. A clergyman ; a priest; a man consecrated to the service of the church.

5e apparatus — Not carried into the 5th edition (1979).

## ECCLESIASTICAL.

Something belong- ing to or set apart for the church, as distin- guished from “civil” or “secular,” with re- gard to the world. Wharton.

—Eoeleslastioal authorities. In England, the clergy, under the sovereign, as temporal head •of the church, set apart from the rest of the people or laity, in order to superintend the pub- lic worship of God and the other ceremonies of religion, and to administer spiritual counsel and instruction. The several orders of the clergy are: (1) Archbishops and bishops;

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(2) deans and chapters ; (3)* archdeacons ; (4) rural deans ; (6) parsons (under whom are Included appro- priators) and vicars ; (6) curates. Churchwardens or sidesmen, and parish clerks and sex- tons, inasmuch as their duties are connected with the church, may be considered to be a species of ecclesiastical authorities. Wharton. —Ecclesiastical commissioners. In English law. A body corporate, erected by St 6 & 7 Wm. IV, c. 77, empowered to suggest measures conducive to the efficiency of tne established church, to be. ratified by orders in council. Wharton. 8ee 8 Steph. Comm. 156, 157. — Ec- clesiastical corporation. See Corporation. —Ecclesiastical oouneil. In New England. A church court or tribunal, having functions partly judicial and partly advisory, appointed to determine questions relating to church discip- line, orthodoxy, standing of ministers, contro- versies between ministers and tbeir churches, differences and divisions in churches, and the like. Stearns v. First Parish, 21 Pick. (Mass.) 124 ; Sheldon v. Congregational Parish, 24 Pick. (Mass.) 281.— Eeeleslastlcal courts, A sys- tem of courts in England, held by authority of the sovereign, and having jurisdiction over mat- ters pertaining to the religion and ritual of the established church, and the rights, duties, and discipline of ecclesiastical persons as such. They are as follows: The archdeacon’s court, consistory court, court of arches, court of pe- culiars, prerogative court, court of delegates, court of convocation, court of audience, court of faculties, and court of commissioners of re- view. 8ee those several titles ; and see 3 Bl. Comm. 64-68. Equitable Life Assur. Soc. v. Paterson, 41 Ga. 364, 5 Am. Rep. 535. — Eoele- slastieal division of England. This is a division into provinces, dioceses, archdeaconries, rural deaneries, and parishes.— Eoeleslastioal jurisdiction. Jurisdiction over ecclesiastical cases and controversies ; such as appertains to the ecclesiastical courts. Short v. Stotts, 58

Ind. 35.— Eoeleslastioal law. The body of

jurisprudence administered by the ecclesiastical courts of England ; derived, in large measure, from the canon and civil law. As now restrict- ed, it applies mainly to the affairs, and the doc- trine, discipline, and worship, of the establish- ed church. De Witt v. De Witt, 67 Ohio St. 340. 66 N. E. 136.— Eoeleslastioal things. This term, as used in the canon law, includes church buildings, church property, cemeteries, and property given to the church for the sup- port of the poor or for any other pious use. Smith v. Bonhoof, 2 Mich. 115.

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## ECDIOTTS.

The attorney, proctor, or ad- vocate of a corporation. Episcoporum ecdi- oi; bishops' proctors; church lawyers. 1 Reeve, Eng. Law, 65.

5e apparatus — Not carried into the 5th edition (1979).

## ECHAMTILLON.

In French law. One of the two parts or pieces of a wooden tally. That in possession of the debtor is properly called the “tally,” the other “echantiUon.” Both. Obi. pt 4, c. 1, art 2, | 8.

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## ECHEVUT.

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In French law. A munic- ipal officer corresponding with alderman or burgess, and having In some instances a civil jurisdiction in certain causes of trifling Im- portance

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## EOHOLALIA.

In medical Jurisprudence. The constant and senseless repetition of par- ticular words or phrases, recognized as a sign or symptom of insanity or of aphasia.

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**[Humanity] — Humanity / Fiction & Film**

**[Ovid, Metamorphoses, c. 8 CE]**

(paraphrase) In Ovid's Metamorphoses (Book 3), the nymph Echo is cursed to speak only by repeating the last words of others — the mythic origin of the symptom the entry defines as 'the constant and senseless repetition of particular words or phrases.' (paraphrase)

Why: Headword as parsed ('EOHOLALIA' = ECHOLALIA). The entry is the medical term for compulsive repetition. The Echo myth is the genuine classical source of the name and the image; verified via multiple classical sources.

## ECHOTJEMEXT.

In French marine law. Stranding. Emerlg. Tr. des Ass. a 12, s. 13, no. L

ECLAMPSIA PARTUMElfTIPM. In

medical jurisprudence. Puerperal convul- sions ; a convulsive seizure which sometimes suddenly attacks a woman in labor or direct- ly after, generally attended by unconscious- ness and occasionally by mental aberration.

5e apparatus — Not carried into the 5th edition (1979).

## ECLECTIC PRACTICE.

In medicine. That system followed by physicians who se- lect their modes of practice and medicines from various schools. Webster.

“Without professing to understand much of medical phraseology, we suppose that the terms ‘allopathic practice* and legitimate business’ mean the ordinary method commonly adopted by the great body of learned and eminent physi- cians, which is taught in their institutions, es- tablished by their highest authorities, and ac- cepted by the larger and more respectable por- tion of the community. By ‘eclectic practice,’ without imputing to it, as the counsel for the plaintiff seem inclined to, an odor of illegality, we presume is intended another and different system, unusual and eccentric, not countenanced by the classes before referred to, but characteriz- ed by them as spurious and denounced as dan- gerous. It is sufficient to say that the two modes of treating human maladies are essen- tially distinct, and based upon different views of the nature and causes of diseases, their appro- priate remedies, and the modes of applying them.” Bradbury v. Bardin, 34 Conn. 453.

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## ECRIVAIN.

In French marine law. The clerk of a ship.' Emerig. Tr. des Ass. c. 11, a. 8, no. 2.

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## ECUMENICAL.

General; universal; as an ecumenical council. Groe-sbeeek v. Duns- cornb, 41 How. Prae. (N. Y.) 344.

5e apparatus — Not carried into the 5th edition (1979).

## EDDERBREGHE.

In Saxon law. Tbe offense of hedge-breaking. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## EDESTIA.

In old records. Buildings.

5e apparatus — Not carried into the 5th edition (1979).

## EDICT.

A positive law promulgated by the sovereign of a country, and having ref- erence either to the whole land or some of its divisions, but usually relating to affairs of State. It differs from a “public proclama- tion,” In that It enacts a new statute, and carries with it the authority of law.

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**[Scripture] — Scripture**

**[Luke 2:1, KJV]**

And it came to pass in those days, that there went out a decree from Caesar Augustus, that all the world should be taxed.

Why: Caesar's decree taxing all the world — the sovereign's edict in scripture's own instance.

## EDICTAE CITATION.

In Scotch law. A citation published at the market-cross of Edinburgh, and pier and shore of Leith. Used against foreigners not within the king- dom, but having a landed estate there, and against natives out of the kingdom. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## EDICTS OF JUSTINIAN.

Thirteen con- stitutions or laws of this prince, found in most editions of the Corpus Juris Civilis, after the Novels. Being confined to matters of police in the provinces of the empire, they are of little use.

5e apparatus — Not carried into the 5th edition (1979).

## EDICTUM.

In the Boman law. An edict; a mandate, or ordinance. An ordi- nance, or law, enacted by the

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emperor with- out the senate; belonging to the class of con- stitutions principis. Inst. 1, 2, 6. An

edict was a mere voluntary constitution of the emperor; differing from a rescript, in not being returned in the way of answer; and from a decree, in not being given in Judgment ; and from both, in not being founded upon solicitation. Tayl. Civil Law, 233.

A general order published by the prsetor, on entering upon his office, containing the system of rules by which he would administer Justice during the year of his office. Dig. 1, 2, 2, 10; Mackeld. Rom. Law, | 35. Tayl. Civil Law, 214. See Calvin.

— Edictnm annnnm. The annual edict or system of rules promulgated by a Roman prce- tor immediately upon assuming his office, set- ting forth the principles by which he would be guided in determining causes during his term of office. Mackeld. Rom. Law. $ 36. — Edictnm perpetnnm. The perpetual edict. A compila- tion or system of law in fifty books, digested hy Julian, a lawyer of great eminence under the reign of Adrian, from the praetor’s edicts and other parts of the Jus Honorarium. AH the remains of it w.hich have come down to us are the extracts of it in the Digests. Butl. Hor. Jur. 52. — Edictnm provinciate. An edict or system of rules for the administration of justice, similar to tbe edict of the praetor, put forth by tbe proconsuls and propraetors in the provinces of the Roman Empire. Mackeld. Rom. Law, j 36.— Edictnm Theodorici. This is the first collection of law that was made after the downfall of the Roman power in Italy. It was promulgated by Theodoric, king of the Ostrogoths, at Rome in A. D. 500. It consists

of 154 chapters, in which we recognise parts taken from the Code and Novelise of Theodosius, from the Codices Gregorianus and Hermogenian- us, and the Sententise of Paulus. The edict was doubtless drawn up by Roman writers, but the original sources are more disfigured and altered than in any other compilation. This collection of law was intended to apply both to the Goths and the Romans, so far as its pro- visions went ; but, when it made no alteration in tbe Gothic law, that law was still to be in force. Savigny, Geschichte des R. R.— Edic- tam tralatitinm. Where a Roman prsetor, upon assuming office, did not publish a wholly new edict, but retained the whole or a principal part of the edict of his predecessor (as was usually the case) only adding to it such rules as appeared to be necessary to adapt it to chang- ing social conditions or juristic ideas, it was called “edictum tralatitium." Mackeld. Rom. Law, i 36.

5e apparatus — Not carried into the 5th edition (1979).

## EDITUS.

In old English law. Put forth or promulgated, when speaking of the pas- sage of a statute ; and brought forth, or born, when speaking of the birth of a child.

5e apparatus — Not carried into the 5th edition (1979).

## EDUCATION.

Within the meaning of a statute relative to the powers and duties of guardians, this term comprehends not mere- ly the instruction received at school or col- lege, but the whole

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course of training, moral, intellectual, and physical. Education may be particularly directed to either the mental, moral, or physical powers and faculties, but in its broadest and best sense it relates to them all. Mount Herman Boys' School v. Gill, 145 Mass. 139, 13 N. E. 354 ; Cook v. State, 90 Tenn. 407, 16 S. yv. 473, 13 L. R.

A. 183 ; Ruohs v. Backer, 6 Heisk. (Tenn.) 400, 19 Am. Rep. 598.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 22:6, KJV]**

Train up a child in the way he should go: and when he is old, he will not depart from it.

Why: 'Train up a child' — education as formation, the entry's whole-course training in a proverb.

## EFFECT.

The result which an instru- ment between parties will produce in their relative rights, or which a statute will pro- duce .upon the existing law, as discovered from the language used, the forms employed, or other materials for construing it

The phrases "take effect," "be in force," "go into operation," etc., have been used inter- changeably ever since the organization of the state. Maize v. State, 4 Ind. 342.

5e apparatus — Not carried into the 5th edition (1979).

## EFFECTS.

Personal estate or property. This word has been held to be more compre- hensive than the word "goods," as includ- ing fixtures, which "goods" will not include. Bank v. Byram, 131 111. 92, 22 N. B. 842.

I n wills. The word "effects" is equiva- lent to "property," or "worldly substance," and, if used simpliciter, as In a gift of "all my effects," will carry the whole personal estate. Ves. Jr. 507 ; Ward, Leg. 209. The addition of the words "real and personal" will extend it so as to embrace the whole of the testator's real and personal estate. Ho- gan v. Jackson, Cowp. 304; The Alpena (D. C.) 7 Fed. 361.

This is a word often found in wills, and. being equivalent to "property," or "worldly substance." its force depends greatly upon the association of the adjectives "real" and "personal." "Real and personal effects"

would embrace the whole estate; but the word "effects" alone must be confined to per- sonal estate simply, unless an intention ap- pears to the contrary. Schouler, Wills, § 609. See Adams v. Akerlund, 168 111. 632, 48 N. E. 454; Ennis v. Smith, 14 How. 409, 14 L. Ed. 472.

Efintni loquitur oaium. Wing. 226. The effect follows the cause.

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## EFFEKBI.

In Turkish language. Mas- ter; a title of respect

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Not carried into the 5th edition (1979).

## EFFICIENT CAUSE.

The working cause ; that cause which produces effects or results; an Intervening cause, which pro- duces results which would not have come to pass except for its interposition, and for which, therefore, the person who set in mo- tion the original chain of causes is not re- sponsible. Central Coal & Iron Co. v. Pearce (Ky.) 80 S. W, 450; Pullman Palace Car Co. v. Laack, 143 111. 242, 32 N. E. 285, 18 L. B.

A. 215.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Aristotle, Physics, c. 350 BCE]**

Aristotle's four causes (Physics II.3) — material, formal, efficient, and final — make the efficient cause the agent or source that sets change in motion (e.g., the sculptor of the statue): the philosophical root of the entry's 'working cause.'

Why: The entry defines the efficient cause as 'the working cause... which produces effects or results.' Aristotle's aitiai are the genuine classical source of the term; the note marks that the legal usage (intervening caus...

## EFFIGY.

The corporeal representation of a person.

To make the effigy of a person with an in- tent to make him the object of ridicule is a libel.' 2 Chit. Crim. Law, 866.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:4, KJV]**

Thou shalt not make unto thee any graven image, or any likeness of any thing that is in heaven above, or that is in the earth beneath, or that is in the water under the earth:

Why: The commandment against making likenesses — the effigy as representation, addressed at the root.

**[Humanity] — Humanity / Fiction & Film**

**[James McTeigue, V for Vendetta, 2005]**

(paraphrase) The film revives the Guy Fawkes effigy tradition — the burning 'guy' and the Fawkes mask — as political theater: the corporeal representation of a person made an object of public meaning, the entry's sense. (paraphrase)

Why: The entry: 'The corporeal representation of a person,' noting libel by effigy. The Guy Fawkes effigy tradition, carried by the film, is the living English instance.

## EFFLUX.

The running of a prescribed period of time to its end ; expiration by lapse of time. Particularly applied to the termi- nation of a lease by the expiration of the term for which it was made.

5e apparatus — Not carried into the 5th edition (1979).

## EFFLUXION OF TIME.

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When this phrase is used in leases, conveyances, and other like deeds, or in agreements expressed in simple writing, it indicates the -conclusion or expiration of an agreed term of years specified in the deed or writing, such conelu- siop or expiration arising in the natural course of events, in contradistinction to the determination of the term by the acts of the parties or by some Unexpected or unusual in- cident or other sudden event. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## EFFORCIALITER.

Forcibly ; applied to military force.

5e apparatus — Not carried into the 5th edition (1979).

## EFFRACTION.

A breach made by the use of force.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 24:43, KJV]**

But know this, that if the goodman of the house had known in what watch the thief would come, he would have watched, and would not have suffered his house to be broken up.

Why: The house 'broken up' by the thief — effraction named in Jesus' parable of watchfulness.

## EFFRACTOR.

One who breaks through ; one who commits a burglary.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Alfred Hitchcock, To Catch a Thief, 1955]**

(paraphrase) Hitchcock's film follows John Robie, the retired jewel thief 'the Cat,' suspected of a new burglary spree — the screen's most elegant effractor, one who breaks through. (paraphrase)

Why: The entry: 'One who breaks through; one who commits a burglary.' The film is genuinely about a burglar.

## EFFUSIO SANGUINIS.

In old English law. The shedding of blood ; the mulct, fine, xoite, or penalty imposed for the shed- ding of blood, which the king granted to many lords of manors. Cowell; Tomlins. See Bloodwit.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: The Noahic ordinance on bloodshed — shedding man's blood answered by man's blood.

## EFTER8.

In Saxon law. Ways, walks, or hedges. Blount.

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## EGALITY.

Owelty, (q. v.) Co. Litt. 169a.

5e apparatus — Not carried into the 5th edition (1979).

## EGO.

I ; myself. This term is used in forming genealogical tables, to represent the person who is the object of inquiry.

5e apparatus — Not carried into the 5th edition (1979).

## EGO, TALIS.

I, such a one. Words used In describing the forms of old deeds. Fleta, lib. 3, c. 14, i 5.

5e apparatus — Not carried into the 5th edition (1979).

## EGREDIENS ET EXEUNS.

In old

pleading. Going forth and Issuing out of (land.) Townsh. Pl. 17.

EGYPTIANS, commonly called “Gyp- sies,” (in old English statutes,) are counter- feit rogues, Welsh or English, that disguise themselves in speech and apparel, and wan- der up and down the country, pretending to have skill in telling fortunes, and to de- ceive the common people, but live chiefly by filching and stealing, and, therefore, the statutes of 1 & 2 Mac c. 4, and 5 Eliz. c. 20, were made to punish such as felons if they departed not the realm or continued to a month. Tenues de la Ley.

Ei incnmbit probatio, qni .licit, non qnl negat| cum per reram nnturnm fao- tnm n eg an tie probatio nulla sit. The

proof lies upon him who affirms, not upon him who denies; since, by the nature of- things, he who denies a fact cannot produce any proof.

Ei nihil turpe, cni nihil satis. To him

to whom nothing is enough, nothing is base. 4 Inst 53.

EIA, or EY. An island. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EIGNE.

L. Ft. Eldest ; eldest-born. The term is of common occurrence in the old books. Thus, bastard eigne means an illegit- imate son whose parents afterwards marry and have a second son for lawful issue, the latter being called mulicr puisne, (after-born.) Eigne is probably a corrupt form of the French “ aini 2 Bl. Comm. 248 ; Litt. | 399.

5e apparatus — Not carried into the 5th edition (1979).

## EIK.

In Scotch law. An addition ; ns, vik to a reversion, eik, to a confirmation. Bell.

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## EINEOIA.

Eldership. See Esnecy.

5e apparatus — Not carried into the 5th edition (1979).

## EINETIUS.

In English law. The old- est; the first-born. Spelman.

EIRE, or EYRE. In old English law. A journey, route, or circuit. Justices in tire were Judges who were sent by commission, every seven years, into various counties to hold the assizes and hear pleas of the crown. 3 Bl. Comm. 58.

5e apparatus — Not carried into the 5th edition (1979).

## EIRENARCHA.

A name formerly given to a Justice of the peace. In the Digests, the word is written “ircnarcha.”

Eiadem modi* dissolvitur obUgatio (u aascltur ex oon tracts, Tel quasi, quibua contrabitur. An obligation which arises from contract, or quasi contract, Is dissolved in the same ways in which it Is contracted. Fleta, lib. 2, c. 60, § 19.

5e apparatus — Not carried into the 5th edition (1979).

## EISNE.

The senior ; the oldest son. Spelled, also, “eigne," “einsne" “o isne," “eign." Termes de la Ley ; Kelham.'

5e apparatus — Not carried into the 5th edition (1979).

## EISNETIA, ETNETIA.

The Share of the oldest son. The portion acquired by primogeniture. Termes de la Ley ; Co. Litt 1666; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EITHER.

May be used in the sense of “each." Chldester v. Railway Co., .59 111. 87.

This word does not mean “all;” but does mean one or the other of two or more speci- fied things. Ft Worth St. R. Co. v. Rose- dale St. R. Co., 68 Tex. 160, 4 S. W. 534.

5e apparatus — Carried into the 5th edition (1979).

## EJECT.

To cast, or throw out; to oust or dispossess ; to put or turn out of posses- sion. 3 Bl. Comm. 198, 199, 200. See Bo- hannon y. Southern Ry. Co., 112 Ky, 106, 65 S. W. 169.

5e apparatus — Carried into the 5th edition (1979).

## EJECTA.

In old English law. A wo- man ravished or deflowered, or cast forth from the virtuous. Blount.

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5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die:

Why: The law's own case of ravishment — the forced damsel and the sentence on the ravisher.

## EJECTION.

A turning out of possession. 3 Bl. Comm. 199.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## EJECTIONS CUSTODIES.

In old Eng- lish law. Ejectment of ward. This phrase, which is the Latin equivalent for the French “eicctment de garde," was the title of a writ which lay for a guardian when turned out of any land of his ward during the minority of the latter. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## EJECTIONS FIR MAE.

Ejection, or

ejectment of farm. The name of a writ or action of trespass, which lay at common law where lands or tenements were let for a term of years, and afterwards the lessor, reversioner, remainder-man, or any stranger ejected or ousted the lessee of his term, ferine, or farm, (ipsum a flrma ejecit.) In this case the latter might have his writ of ejection, by which he recovered at first dam- ages for the trespass only, but It was after- wards made a remedy to recover back the term Itself, or the remainder of It, with damages. Reg. Orlg. 2276; Fitzh. Nat. Brev. 220, F, G ; 3 Bl. Comm. 199 ; Litt i 322; Crabb, Eng. Law, 290, 448. It Is the foundation of the modern action of eject- ment.

5e apparatus — Not carried into the 5th edition (1979).

## EJECTMENT.

At common law, this was the name of a mixed action (springing from the earlier personal action of ejcctione

flrma) which lay for the recovery of the pos- session of land, and for damages for the un- lawful detention of its possession. The ac- tion was highly fictitious, being in theory only for the recovery of a term for years, and brought by a purely fictitious person, as lessee in a supposed lease from the real party In interest. The latter’s title, how- ever,, must be established In order to warrant a recovery, and the establishment of such ti- tle, though nominally a mere Incident, Is In reality the object of the action. Hence this convenient form of suit came to be adopted as the usual method of trying titles to land. See 8 Bl. Comm. 199. French v. Robb, 67

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N. J. Law, 260, 51 AO. 509, 57 L. R. A. 966. 91 Am. St. Rep. 433 ; Crockett v. Lashbrook, 5 T. B. Mon. (Ky.) 538, 17 Am. Dec. 98; Wilson v. Wight man, 36 App. Div. 41, 55 N.

Y. Supp. 806; Hoover v. King, 43 Or. 281, 72 Pac. 880, 65 L. R. A. 790, 99 Am. St. Rep. 754 ; Hawkins v. Reichert, 28 Cal. 536.

It wag the only mixed action at common law, the whole method, of proceeding in whieh was anomalous, and depended on fictions invented and upheld by the court for the convenience of justice, in order to escape from the inconven- iences which were found to attend the ancient forms of real and mixed actions.

It is also a form of action by which posses- sory titles to corporeal hereditaments may be tried and possession obtained.

— Ejectment bill. A bill in equity brought merely for the recovery of real property, to- gether with an account of the rents and profits, without setting out any distinct ground of eq- uity jurisdiction ; hence demurrable. Crane v. Conklin, 1 N. J. Eq. 353, 22 Am. Dec. 519. —Equitable ejectment. A proceeding in use in Pennsylvania, brought to enforce specific per- formance of a contract for the sale of land, and for some other purposes, which is in form an action of ejectment, but is in reality a sub- stitute for a bill in equity. Riel v. Gannon, 161 Pa. 289, 29 Atl. 55; McKendry v. McKendry, 131 Pa. 24, 18 Atl. 107a 6 L. R. A. 506.— Jus- tice ejectment. A statutory proceeding in Vermont, for the eviction of a tenant holding over after termination of the lease or breach or its conditions. Foss v. Stanton, 76 Vt. 365, 57 Atl. 942.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[John Steinbeck, The Grapes of Wrath, 1939]**

(paraphrase) Steinbeck's novel follows the tenant farmers driven off their Oklahoma land by tractors and banks — the Joads' ejection rendered as the central American image of dispossession. (paraphrase)

Why: The entry is the action for recovery of possession of land from unlawful detention. The novel's tenant-farmer evictions are the canonical fictional treatment of ejectment.

## EJECTOR.

One who ejects, puts out, or dispossesses another.

—Casual ejector. The nominal defendant in an action of ejectment ; so called because, by a fiction of law peculiar to that action, he is sup- posed to come casually or by accident upon the

6 remises and to eject the lawful possessor. 3 1. Comm. 203.

5e apparatus — Carried into the 5th edition (1979).

## EJEOTUM.

That which is thrown up by the sea. Also jetsam, wreck, etc.

5e apparatus — Not carried into the 5th edition (1979).

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## EJECTUS.

In old English Jaw. A whoremonger. Blount

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 13:4, KJV]**

Marriage is honourable in all, and the bed undefiled: but whoremongers and adulterers God will judge.

Why: 'Whoremongers... God will judge' — the entry's very word, with its sentence.

## EJERCITORIA.

In Spanish law. The name of an action lying against a ship’s owner, upon the contracts or obligations made by the master for repairs or supplies. It co responds to the actio erercitoria of the Roman law. Mackeld. Rom. Law, § 512.

5e apparatus — Not carried into the 5th edition (1979).

## EJXDOS.

In Spanish law. Commons; lands used in common by the inhabitants of a city, pueblo, or town, for pasture, wood, threshing-ground, etc. Hart v. Burnett, 16 Cal. 654.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:2-3, KJV]**

Command the children of Israel, that they give unto the Levites of the inheritance of their possession cities to dwell in; and ye shall give also unto the Levites suburbs for the cities round about them. And the cities shall they have to dwell in; and the suburbs of them shall be for their cattle, and for their goods, and for all their beasts.

Why: The Levitical suburbs — common land round the cities for cattle and goods — the ejido in scripture's form. [re-homed from 'EJIDOS' to 'EJXDOS' (OCR headword / parser-merge artifact)]

## EJURATION.

Renouncing or resigning one's place.

EJai eat interpreter! enjna eat Bon- ders. It is his to interpret whose it is to enact. Tayl. Civil Law, 96.

EJni eat nolle, qni poteat Telle. He

who can will, [exercise volition,] has a right to refuse to will, [to withhold consent.] Dig. 60, 7, 3.

EJsa eat perieulum enjna eat domin- ium ant oommodnm. He who has the dominion or advantage has the risk.

EJus nnlla enlpa eat, enl par ere ne- eeaae ait. No guilt attaches to him who is compelled to obey. Dig. 50, 17, 169, pr. Obedience to existing laws is a sufficient ex- tenuation of guilt before a civil tribunal. Broom, Max. 12, note.

5e apparatus — Not carried into the 5th edition (1979).

## EJUSDEM GENERIS.

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Of the same

kind, class, or nature.

In statutory construction, the “ejusdem gen- eris rule" is that where general words follow an enumeration- of persons or things, by words of a particular and specific meaning, such general words are not to be construed in their widest extent, but are to be held as applying only to persons or things of the same general kind or class as those specifically mentioned. Black, Interp. Laws, 141 ; Cutsbaw v. Denver, 19 Colo. App. 341, 75 Pac. 22; Ex parte Leland. 1 Nott & McC. (S. C.) 462; Spalding v. People, 172 111. 40, 49 N. E. 993.

5e apparatus — Not carried into the 5th edition (1979).

## ELABORARE.

In old European lawi To gain, acquire, or purchase, as by labor and Industry.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 3:19, KJV]**

In the sweat of thy face shalt thou eat bread, till thou return unto the ground; for out of it wast thou taken: for dust thou art, and unto dust shalt thou return.

Why: Bread by the sweat of the face — acquisition by labor ordained at the Fall.

## ELABORATES.

Property which is the acquisition of labor. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ELDER BRETHREN.

A distinguished body of men, elected as masters of Trinity House, an institution incorporated in the reign of Henry VIII., charged with numer- ous important duties relating to the marine, such as the superintendence of light-houses. Mosley & Whitley; 2 Stepb. Comm. 502.

5e apparatus — Carried into the 5th edition (1979).

## ELDER TITLE.

A title of earlier date, but coming simultaneously into operation with a title of younger origin, is called the “elder title,” and prevails.

5e apparatus — Carried into the 5th edition (1979).

## ELDEST.

He or she who has the great- est age.

The “eldest son” is the first-born son. If there is only one son, he may still be de- scribed as the “eldest” It B. 7 H. L 644.

Electa nna via, nos datnr recurs ns ad alteram. He who has chosen one way cannot have recourse to another. 10 Toull. no. 170.

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## ELECTED.

The word "elected,” In its ordinary signification, carries with it the idea of a vote, generally popular, sometimes more restricted, and cannot be held the syn- onym of any other mode of filling a position. Magruder v. Swann, 25 Md. 213; State v. Harrison, 113 Ind. 434, 16 N. E. 384, 3 Am. St Rep. 663; Kimberlln v. State, 130 Ind. 120, 29 N. E. 773, 14 L. R. A. 858, 30 Am. St Rep. 208; Wickersham v. Brit tan, 93 Cat 34, 28 Pac. 792, 15 L. R. A. 106 ; State v. Irwin, 5 Nev. 111.

Eleetio est interna libera et sponta- nea separatio uni us rei ab alia, elite compul stone, consistens in animo et

voluntate. Dyer, 281. Election is an in- ternal, free, and spontaneous separation of one thing from another, without compulsion, consisting in intention and will.

Eleetio semel facta, et placitum tes- tatum non patitur regressum. Co. Lltt 146. Election once made, and plea wit- nessed, suffers not a recall.

5e apparatus — Carried into the 5th edition (1979).

## ELECTION.

The act of choosing or se- lecting one or more from a greater number of persons, things, courses, or rights. The choice of an alternative. State v. Tucker, 54 Ala. 210.

The internal, free, and spontaneous sepa- ration of one thing from another, without compulsion, consisting in intention and will. Dyer, 281.

The selection of one man from among sev- eral candidates to discharge certain duties in a state, corporation, or society. Maynard v. District Canvassers, 84 Mich. 228, 47 N.

W. 756, 11 L. R. A. 332; Brown v. Phil- lips, 71 Wls. 239, 36 N. W. 242 ; Wickersham v. Brittan, 93 Cal. 34, 28 Pac. 792, 15 L. R.

A. 106.

The choice which is open to a debtor who is bound in an alternative obligation to se- lect either one of the alternatives.

Ia equity. The obligation imposed upon a party to choose between two inconsistent or alternative rights or claims, in cases where there is clear intention of the person from whom he derives one that he should not enjoy both. 2 Story, Eq. Jur. I 1075; Bliss v. Geer, 7 111. App. 617 ; Norwood v. Lassiter, 132 N. C. 52, 43 S. E. 509 ; 8alen- tine v. Insurance Co., 79 Wis. 580, 48 N. W. 855, 12 L. R. A. 690.

The doctrine of election presupposes a plural- ity of gifts or rights, with an intention, express or implied, of the party who has a right to con- trol one or both, that one should be a substitute for the other. 1 SwansL 394, note 6; 3 Wood. Lect. 491 ; 2 Rop. Leg. 480-578.

In practice. The liberty of choosing (or the act of choosing) one out of several means

afforded by law for the redress of an In- jury, or one out of several available forms of action. Almy v. Harris, 5 Johns. (N. Y.) 175.

In criminal law. The choice, by the prosecution, upon which of several counts In an

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Indictment (charging distinct offenses of the same degree, but not parts of a continu- ous series of acts) it will proceed. Jackson v. State, 95 Ala. 17, 10 South. 657.

In the law of wills, A widow's election Is her choice whether shp will take under the will or under the statute ; that is, wheth- er she will accept the provision made for her In the will, and acquiesce In her hus- band’s disposition of his property, or disre- gard it and claim what the law allows her. In re Cunningham’s Estate, 137 Pa. 021, 20 Atl. 714, 21 Am. St. Itep. 901 ; Sill v. Sill, 31 Kan. 248. 1 Pac. 556 ; Burroughs v. De Couts, 70 Cal. 361, 11 Pac. 734.

— Election auditor*. In English law. Of- ficers annually appointed, to whom was commit- ted the duty of taking and publishing the ac- count of all expenses incurred at parliamentary elections. See 17 & 18 Viet. c. 102, if 18. 26- 28. But these sections have been repealed by 26 Viet. c. 29, which throws the duty of pre- paring the accounts on the declared agent of the candidate, and the duty of publishing an abstract of it on the returning officer. Whar- ton.— Election district. A subdivision of ter- ritory, whether of state, county, or city, the boundaries of which are fixed by law, for con- venience in local or general elections. Chase v. Miller. 41 Pa. 420; Lane v. Otis, 68 N. J. Law, 656. 54 Atl. 442.— Election dower. A name sometimes given to the provision which a law or statute makes for a widow in case she “elects” to reject the provision made for her in the will and take what the statute accords. Adams v. Adams. 183 Mo. 396. 82 S. IV. 66. —Election judges. In English law. Judges of the high court selected in pursuance of 31 & 32 Viet. c. 125. f 11, and Jud. Act 1873, f 38, for the trial of election petitions.— Election petition*. Petitions for inquiry into the va- lidity of elections of members of parliament, when it is alleged that the return of a member Is invalid for bribery or any other reason. These petitions are heard by a judge of one of the common-law divisions of the high court.— Equitable election. The choice to be made ljy a person who may, under a will or other in- strument. have either one of two alternative rights or benefits, but not both. Peters v. Bain, 133 U. S. 670. 10 Sup. Ct. 354, 33 L. Ed. 696 ; Drake v. Wild, 70 Vt. 52, 39 Atl. 248.— Gen- eral election. (1) One at which the officers to be elected are such as belong to the general government,— that is, the general and central political organization of the whole state ; as distinguished from an election of officers for a particular locality only. (2) One held for the selection of an officer after the expiration of the full term of the former officer; thus distin- guished from a special election, which is one held to supply a vacancy in office occurring be- fore the expiration of the full term for which the incumbent was elected. State v. King, 17 Mo. 514: Downs v. State. 78 Md. 128, 26 Atl. 1005; Mackin v. State. 62 Md. 247; Kenfield v. Irwin. 52 Cal. 169. — Primary election. An election by the voters of a ward, precinct, or other small district, belonging to a particular party, of representatives or delegates to a con- vention which is to meet and nominate the can- didates of their party to stand at an approach- ing municipal or general election. See State v.

Hirsch, 125 Ind. 207, 24 N. E. 1062, 9 L. R.

A. 170; People v. Cavanaugh, 112 Cal. 676, 44 Pac. 1057; State v. Woodruff, 68 N. J. Law, 89, 52 Atl. 294. — Regular election. A gen- eral, usual, or stated election. When applied to

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elections, the terms “regular” and “general” are used interchangeably and synonymously. The word "regular” is used in reference to a general election occurring throughout the state. State v. Conrades, 45 Mo. 47 ; Ward v. Clark, 35 Kan. 315, 10 Pac. 827 ; People v. Babcock, 123 Cal. 307, 55 Pac. 1017.— Special election. An election for a particular emergency; out of the regular course ; as one held to fill a vacancy arising by death of the incumbent of the office.

Elections* riant rite ot libera sine in- terruptions aliqna. Elections should be made in due form, and freely, without any interruption. 2 Inst. 169.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Electio semel facta, et placitum testatum non patitur regressum — election once made, and plea witnessed, suffers not a recall (Co. Litt. 146)]**

The operative consequence running through the election doctrines — equitable election, election of remedies, the widow's election — is that an election once made binds: it suffers no recall.

Why: Copied verbatim from where the maxim appears in the body (under ELECTED) and placed on the entry it governs. The entry expounds the many election doctrines; the maxim states the binding-force principle common to them…

## ELECTIVE.

Dependent upon choice; be- stowed or pa'sslng by election. Also per- taining or relating to elections; conferring the right or power to vote at elections.

—Elective franchise. The right of voting at public elections; the privilege of qualified voters to cast their ballots for the candidates they favor at elections authorized by law. Parks v. State, 100 Ala. 634. 13 South. 756; People v. Barber, 48 Hun (X. Y.) 198; State v. Staten, 6 Cold. (Tenn.) 255. — Elective of- fice. One which is to be filled by popular election. Rev. Laws Mass. 1902, p. 104, c. 11, ! 1.

5e apparatus — Carried into the 5th edition (1979).

## ELECTOR.

A duly qualified voter; one who has a vote in the choice of any officer; a constituent. Appeal of Cuslck, 136 Pa. 459, 20 Atl. 574, 10 L. R. A. 228; Bergevin v. Curtz, 127 Cal. 86, 59 Pac. 312; State v. Tuttle, 53 Wis. 45, 9 N. W. 791. Also the title of certain German princes who formerly had a' voice in the election of the German emperors.

— Elector* of president. Persons chosen by the people at a so-called “presidential elec- tion,” to elect a president and vice-president of the United States.

5e apparatus — Carried into the 5th edition (1979).

## ELECTORAL.

Pertaining to electors or elections ; composed or consisting of electors.

—Electoral college. The body of princes formerly entitled to elect the emperor of Ger- many. Also a name sometimes given, in the United States, to the body of electors chosen by the people to elect the president and vice- president. Webster.

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## ELECTROCUTE.

To put to death by passing through the body a current of elec- tricity of high power. This term, descriptive of the method of inflicting the death pen- alty on convicted criminals in some of the states, is a vulgar neologism of hybrid origin, which should be discountenanced.

ELEEMOSYKA REGIS, and ELEE- MOSYNA ARATRI, or CARUCARUM.

A penpy which King Ethelred ordered to be paid for every plow in England towards the support of the poor. Leg. Ethel, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## ELEEMOSYNAB.

Possessions belonging to the church. Blount

5e apparatus — Not carried into the 5th edition (1979).

## ELEEMOSYNARIA.

The place In a re- ligious house where the common alms were deposited, and thence by the almoner dis- tributed to the poor.

Is old English law. The aumcric. aum- bry, or ambry; words still used In common speech In the north of England, to denote a pantry or cupboard. Cowell.

The office of almoner. Cowell.

ELEEMOSYNARIES . In old English law. An almoner, or chief officer, who re- ceived the eleemosynary rents anl gifts, and In due method distributed them to pious and charitable uses. Cowell; Wharton.

The name of an officer (lord almoner) of the English kings, in former times, who dis- tributed the royal alms or bounty. Fleta, lib. 2, c. 23.

5e apparatus — Not carried into the 5th edition (1979).

## ELEEMOSYNARY.

Relating to the dis- tribution of alms, bounty, or charity ; chari- table.

— Eleemosynary corporations. See Coa- P0RATI0N8.

. ELEGANTER. In the civil law. Ac- curately ; with discrimination. Yeazie v. Williams, 3 Story, 611, 636, Fed. Cas. No. 16,907.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 6:3, KJV]**

But when thou doest alms, let not thy left hand know what thy right hand doeth:

Why: Jesus' rule of almsgiving — charity done in secret — the eleemosynary act in His own command.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

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(paraphrase) Dickens' Scrooge — converted from 'are there no prisons?' to the great Christmas benefactor — embodies the charitable impulse; the novel is the culture's central fable of eleemosynary giving. (paraphrase)

Why: The entry: 'Relating to the distribution of alms, bounty, or charity; charitable.' The Carol is the archetypal fiction of charity.

## ELEGIT.

(Lat He has chosen.) This is the name, in English practice, of a writ of execution first given by the statute of Westm. 2 (13 Edw. I. c. 18) either upon a judgment for a debt or damages or upon the forfeiture of a recognizance taken in the king's court. It is so called because it is in the choice or election of the plaintiff whether he will sue out this writ or a fi. fa. By it the defendant's goods and chattels are ap- praised and all of them (except oxen and beasts of the plow) are delivered to the plaintiff, at such reasonable appraisement and price, in part satisfaction of his debt If the goods are not sufficient, then the moie- ty of his freehold lands, which he had at the time of the judgment given, are also to be delivered to the plaintiff, to hold till out of the rents and profits thereof the debt be lev- ied, or till the defendant’s interest be expired. During this period the plaintiff is called “tenant by elegit," and his estate, an “es- tate by elegit." This writ, or its analogue, is In use In some of the United States, ns Vir- ginia and Kentucky. See 3 Bl. Comm. 418; Hutcheson v. Grubbs, 80 Va. 254; North American F. Ins. Co. v. Graham, 5 Sandf. (N. Y.) 197.

5e apparatus — Not carried into the 5th edition (1979).

## ELEMENTS.

The forces of nature. The elements are the means through which God acts, and “damages by the elements'’ means the same thing as “damages by the act of God.” Polack v. Ploche, 35 Cal. 41(5, 95 Am. Dec. 115; Van Wormer v. Crane. 51 Mich. 863, 16 N. W. 686, 47 Am. Rep. 582; Hatch Bl.Law Dict.(2d Ed.)— 27

v. Stamper, 42 Conn. 30; Pope v. Milling Co., 130 Cal. 139, 62 Pac. 384, 53 L. R. A. 673, 80 Am. St. Rep. 87.

5e apparatus — Carried into the 5th edition (1979).

## ELIGIBLE.

As applied to a candidate for an elective office, this term means capa- ble of being chosen ; the subject of selection or choice; and also implies competency to hold the office If chosen. Demaree v. Scates. 50 Kan. 275, 32 Pac. 1123, 20 L. R. A. 97, 34 Am. St Rep. 113 ; Carroll v. Green, 148 Ind. 362, 47 N. E. 223; Searcy v. Grow, 15 Cal. 121 ; People v. Purdy, 21 App. Div. 60, 47 N.

Y. Supp. 601.

ELIMINATION, in old English law. The act of banishing or turning out of doors ; rejection.

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## ELINGUATION.

The punishment of cutting out the tongue.

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5e apparatus — Not carried into the 5th edition (1979).

## ELISORS.

In practice. Electors or choosers. Persons appointed by the court to execute writs of venire, in cases where both the sheriff and coroner are disqualified from acting, and whose duty is to choose — that is, name and return — the Jury. 3 Bl. Comm. 355; Co. Litt 158; 3 Steph. Comm. 597, note.

Persons appointed to "execute any writ, in default of the sheriff and coroner, are also called “elisors.” See Bruner v. Superior Court, 92 Cal. 239, 28 Pac. 341.

ell. A measure of length, answering to the modern yard. 1 Bl. Comm. 275.

5e apparatus — Not carried into the 5th edition (1979).

## ELOGIUM.

In the civil law. A will or testament.

ELOIGN E In practice. (Fr. Eloigner, to remove to a distance ; to remove afar off.) A return to a writ of replevin, when the chattels have been removed out of the way of the sheriff.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 9:16, KJV]**

For where a testament is, there must also of necessity be the death of the testator.

Why: The epistle states the legal nature of a testament — operative only at the testator's death — the entry's concept exactly.

## ELOIGNMENT.

The getting a thing or person out of the way ; or removing it to a distance, so as to be out of reach. Garneau ' v. Mill Co., 8 Wash. 467, 36 Pac. 463.

5e apparatus — Not carried into the 5th edition (1979).

## ELONGATA.

In practice. Eloigned; carried away to a distance. The old form of the return made by a sheriff to a writ of replevin, stating that the goods or beasts had been eloigned; that Is, carried to a dis- tance, to places to him unknown. 3 Bl. Comm. 148 ; 3 Steph. Comm. 522 ; Fitzh. Nat Brev. 73, 74 ; Archb. N. Pract 552.

5e apparatus — Not carried into the 5th edition (1979).

## ELONGATES.

Eloigned. A return made by a sheriff to a writ de homing replegiando, stating that the party to be replevied has been eloigned, or conveyed out of his juris- diction. 3 Bl. Comm. 129.

5e apparatus — Not carried into the 5th edition (1979).

## ELONGAVIT.

In England, where in a proceeding by foreign attachment the plaintiff has obtained Judgment of appraisement, but by reason of some act of the garnishee the goods cannot be

appraised, (as where he has removed them from the city, or has sold them, etc.,) the aerjeant-at-mace returns that the garnishee has eloigned them, i. e., re- moved them out of the jurisdiction, and on this return (called an “elongavit”) Judgment is given for the plaintiff that an inquiry be made of the goods eloigned. This inquiry la set down for trial, and the assessment is made by a Jury after the manner of ordinary issues. Sweet

5e apparatus — Not carried into the 5th edition (1979).

## ELOPEMENT.

The act of a wife who voluntarily deserts her husband to cohabit with another man. 2 Bl. Comm. 130. To constitute an elopement the wife must not only leave the husband, but go beyond his actual control ; for If she abandons the hus- band, and goes and lives in adultery in a house belonging to him, it is said not to be an elopement Cogswell v. Tibbetts, 3 N. H. 42.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: The commandment the elopement breaks — the act defined by the prohibition.

## ELSEWHERE.

In another place; in any other place. See 1 Vem. 4, and note.

In shipping articles, this' term, following the designation of the port of destination, must be construed either as void for uncer- tainty or as subordinate to the principal voy- age stated In the preceding words. Brown v. Jones, 2 Gall. 477, Fed. Cas. No. 2,017.

5e apparatus — Carried into the 5th edition (1979).

## ELU VIONES.

In old pleading. Spring tides. Townsh. Pl. 197.

5e apparatus — Not carried into the 5th edition (1979).

## EMANCIPATION.

The act by which one who was unfree, or under the power and control of another, is set at liberty and made his own master. Fremont v. Sandown, 56 N.

H. 308; Porter v. Powell, 79 Iowa, 151, 44

N. W. 295, 7 L, R. A. 17G, 18 Am. St Rep. 353; Varney v. Young, 11 Vt 258.

In Roman law. The enfranchisement of a son by his father, which was anciently done by the formality of an imaginary sale. This was abolished by Justinian, who sub- stituted the simpler proceeding of a manu- mission before a magistrate. Inst 1, 12, 6.

In Louisiana. The emancipation of mi- nors is especially recognized and regulated by law.

In England. The term ‘‘emancipation’' has been borrowed from the Roman law, and is constantly used in the law of parochial settlements. 7 Adol. & E. (N. S.) 574, note.

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— Emancipation proclamation. An execu- tive proclamation, declaring that all persons held in. slavery in cerlain designated states and districts were and should remain free. It was issued January 1, 1863, by Abraham Lincoln, as president of the United States and commander in chief.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Galatians 5:1, KJV]**

Stand fast therefore in the liberty wherewith Christ hath made us free, and be not entangled again with the yoke of bondage.

Why: Liberty wherewith Christ made us free, against the yoke of bondage — emancipation in Paul's figure.

**[Humanity] — Humanity / Fiction & Film**

**[Steve McQueen, 12 Years a Slave, 2013]**

(paraphrase) McQueen's film follows Solomon Northup — kidnapped into slavery, restored to freedom — through the full arc from unfreedom to liberty the entry defines. (paraphrase)

Why: The entry: 'The act by which one who was unfree... is set at liberty and made his own master.' The film is genuinely about emancipation from slavery.

## EMBARGO.

A proclamation or order of state, usually issued in time of war or threat- ened hostilities, prohibiting the departure of

ships or goods from some or all the ports of such state until further order. The Wil- liam King, 2 Wheat 148, 4 L. Ed. 206; De- lano v. Bedford Ins. Co., 10 Mass. 351, 6 Am. Dec. 132; King v. Delaware Ins. Co., 14 Fed. Cas. 516.

Embargo is the hindering or detention by any government of ships of commerce in its ports. If the embargo is laid upon ships belonging to citizens of the state imposing it. it is called a ‘‘civil embaiyo;” if, as more commonly hap- pens, It is laid upon ships belonging to the enemy, it is called a ‘‘hostile embargo.” The effect of this latter embargo is that the ves- sels detained are restored to the rightful own- ers if no war follows, but are forfeited to the embargoing government if war does follow, the declaration of war being held to relate back to the original seizure and detention. Brown.

The temporary or permanent sequestration of the property of individuals for the pur- poses of a government, e. g., to obtain vessels for the transport of troops, the owners being reimbursed for this forced service. Man. Int Law, 143.

5e apparatus — Not carried into the 5th edition (1979).

## EMBASSADOR.

See Ambassador.

EMBASSAGE, or EMBASSY. The mes- sage or commission given by a sovereign or state to a minister, called an “ambassador,” empowered to treat or communicate with an- other sovereign or state; also the establish- ment of an ambassador.

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**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: 'We are ambassadors for Christ' — the embassy and its message ('be ye reconciled to God') in scripture's own terms. [re-homed from 'EMBASSAGE' to 'EMBASSADOR' (OCR headword / parser-merge artifact)]

## EMBER DAYS.

In ecclesiastical law. Those days which the ancient fathers called “quataor tempera jejunii ” are of great an- tiquity In the church. They are observed on Wednesday, Friday, and Saturday next after Quadragesima Sunday, or the first Sunday in Lent, after Whitsuntide, Holyrood Day, in September, and St Lucy’s Day, about the middle of December. Brit c. 53. Our alma- nacs call the weeks in which they fall the “Ember Weeks,” and they are now chiefly noticed on account of the ordination of priests and deacons ; because the canon appoints the Sundays next after the Ember weeks for the solemn times of ordination, though the bish- ops, if they please, may ordain on any Sun- day or holiday. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

## EMBEZZLEMENT.

The fraudulent ap- propriation to his own use or benefit of prop- erty or money intrusted to him by another, by. a clerk, agent, trustee, public officer, or other person acting in a fiduciary character. See 4 Bl. Comm. 230, 231; 3 Kent. Comm. 194 ; 4 Steph. Comm. 168, 169, 219 ; Fagnan v. Knox, 40 N. Y. Super. Ct 49; State v. Sullivan, 49 La. Ann. 197, 21 South. 688. 62 Am. St. Rep. 644; State v. Trolson, 21 Nev. 419, 32 Pac. 930; Moore v. U. S., 160 U. S. 208, 16 Sup. Ct. 294, 40 L. Ed. 422; Fulton y. Hammond (C. C.) 11 Fed. 293 ; People v. Gor- don, 133 Cal. 328, 65 Pac. 746, 85 Am. St Rep. 174.

Embezzlement is the fraudulent appropria- tion of property by a person to whom it has

been Intrusted. Pen. Code Cal. f 503 ; Pen. Code Dak. § 500.

Embezzlement Is q. species of larceny, and the term is applicable to cases of furtive and fraudulent appropriation by clerks, serv- ants, or carriers of property coming Into their possession by virtue of their employ- ment It Is distinguished from “larceny,” properly so called, as being committed in re- spect of property which Is not at the time in the actual or legal possession of the owner. People v. Burr, 41 How. Prac. (N. 1.) 294 ; 4 Steph. Comm. 168.

Embezzlement is not an offense at common law, but was created by statute. “Embezzle” includes in Its meaning appropriation to one’s own use, and therefore the use of the single word "embezzle,” in the indictment or inform- ation, contains within itself the charge that the defendant appropriated the money or prop- erty to his own use: State v. Wolff, 34 La.

Ann. 1153.

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**[Scripture] — Scripture**

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**[Luke 16:1-2, KJV]**

And he said also unto his disciples, There was a certain rich man, which had a steward; and the same was accused unto him that he had wasted his goods. And he called him, and said unto him, How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: The steward accused of wasting entrusted goods, called to account — embezzlement's scriptural portrait.

## EMBLEM A TA TBIBONIANI.

In the

Roman law. Alterations, modifications, and -additions to the writings of the older jurists, selected to make up the body of the Pandects, introduced by Tribonlan and his associates who constituted the commission appointed for that purpose, with a view to harmonize contradictions, exscind obsolete matter, and make the whole conform to the law as understood in Justinian’s time, were called by this name. Mackeld. Rom. Law, | 71.

5e apparatus — Not carried into the 5th edition (1979).

## EMBLEMENTS.

The vegetable chattels called “emblem ents” are the com and other growth of the earth which are produced an- nually, not spontaneously, but by labor and Industry, and thence are called “fructus in- dustrials*." Relff v. Reiff, 64 Pa. 137.

The growing crops of those vegetable pro- ductions of the soil which are annually produc- ed by the labor of the cultivator. They are deemed personal property, and pass as such to the executor or administrator of the occupier, whether he were the owner in fee, or for life, or for years, if he die before he has actually cut. reaped, or gathered the same ; and this, although, being affixed to the soil, they might for some purposes be considered, while grow- ing, as part of the realty. Wharton.

The term also denotes the right of a ten- ant to take and carby away, after his tenancy has ended, such annual products of the land as have resulted from bis own care and labor.

Emblements are the away-going crop; in other words, the crop which is upon the ground and unreaped when the tenant goes away, his lease having determined; and the right to em- blements is the right in the tenant to take away the away-going crop, and for that purpose to come upon the land, and do all other neces- sary things thereon. Brown; Wood v. No- ack. 84 Wis. 398, 54 N. W. 785; Davis v. Brocklebank, 9 N. H. 73; Cottle v. Spitzer, 65 Cal. 456. 4 Pac. 435. 52 Am. Rep. 305; Sparrow v. Pond, 49 Minn. 412, 52 N. W. 36, 16 L. R. A. 103, 32 Am. St. Rep. 571.

5e apparatus — Not carried into the 5th edition (1979).

## EMBLEM BE GENTZ.

L. Fr. A steal- ing from the people. The phrase occurs in the old rolls. of parliament: “Whereas divers

murders, emblers de gentz, and robberies are committed,” eta

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The commandment against theft itself — the act the old French phrase names. [re-homed from 'EMBLER DE GENTZ' to 'EMBLEM BE GENTZ' (OCR headword / parser-merge artifact)]

## EMBOLISM.

In medical Jurisprudence. The mechanical obstruction of an artery or capillary by some body traveling in the blood current, as, a blood-clot (embolus), a globule of fat, or an air-bubble.

Embolism is to be distinguished from “throm- bosis,” a thrombus being a clot of blood formed in the heart or a blood vessel in consequence of some impediment of the circulation from pathological causes, as distinguished from me- chanical causes, for example, an alteration of the blood or walls of the blood vessels. When embolism occurs in the brain (called “cerebral embolism”) there is more or less coagulation of the blood in the surrounding parts, and there may foe apoplectic shock or paralysis of the brain, and its functional activity may be so far disturbed as to cause entire or partial insanity. See Cundall v. Haswell, 23 R. I. 508. 51 Atl. 426.

5e apparatus — Not carried into the 5th edition (1979).

## EMBBACEOB.

A person guilty of the offense of embracery, (q. v.) See Co. Litt 869.

5e apparatus — Not carried into the 5th edition (1979).

## EMBBACEBY.

In criminal law. This offense consists in the attempt to influence a Jury corruptly to one side or the other, by promises, persuasions, entreaties, entertain- ments, douceurs, and the Ilka The person guilty of it is called an “embraceor.” Brown ; State v. Williams, 136 Mo. 293, 38 S. W. 75; Grannls v. Branden, 5 Day (Conn.) 274, 5 Am. Dec. 143; State v. Brown, 95 N. C. 686; Brown v. Beauchamp, 5 T. B. Mon. (Ky.) 415, 17 Am. Dec. 8L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:8, KJV]**

And thou shalt take no gift: for the gift blindeth the wise, and perverteth the words of the righteous.

Why: The gift that 'blindeth the wise, and perverteth the words of the righteous' — the corruption of judgment embracery practices. [re-homed from 'EMBRACERY' to 'EMBBACEBY' (OCR headword / parser-merge artifact)]

**[Humanity] — Humanity / Fiction & Film**

**[John Grisham, The Runaway Jury, 1996]**

(paraphrase) Grisham's legal thriller turns on the corrupt influencing of a jury — both sides' consultants manipulating the Biloxi tobacco-trial jurors — embracery as a whole novel's plot engine. (paraphrase)

Why: Headword as parsed ('EMBBACEBY' = EMBRACERY). The entry defines embracery as attempting 'to influence a jury corruptly to one side or the other, by promises, persuasions, entreaties, entertainments, douceurs.' The nov…

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## EMEND A.

Amends; something given in reparation for a trespass; or, in old Saxon times, in compensation for an injury or crime Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The law of restitution — five oxen for an ox — amends measured and paid, the emenda in action. [re-homed from 'EMENDA' to 'EMEND A' (OCR headword / parser-merge artifact)]

## EMEND ALS.

An old word still made use of in the accounts of the society of the Inner Temple, where so much in emendals at the foot of an account on the balance thereof signifies so much money in the bank or stock of the houses, for reparation of loss- es, or other emergent occasions. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EMEND ABE.

In Saxon law. To make amends or satisfaction for any crime or tres- pass committed ; to pay a fine ; to be fined. Spelman. Emendare se, to redeem, or ran- som one’s life, by payment of a wereglld.

5e apparatus — Not carried into the 5th edition (1979).

## EMENDATIO.

In old English law.

Amendment, or correction. The power o{ amending and correcting abuses, according to certain rules and measures. Cowell.

In Saxon law. A pecuniary satisfaction for tan injury; the same as emenda, ( q . v.) Spelman.

— Emendatio panis et oereviila. In old

English law. The power of supervising and correcting the weights and measures of bread and ale, (assising bread and beer.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EMERGE.

To arise; to come to light "Unless a matter happen to emerge after is- sue joined.” Hale, Anal. | 1.

5e apparatus — Not carried into the 5th edition (1979).

## EMERGENT YEAR.

The epoch or date whence any people begin to compute their time.

5e apparatus — Carried into the 5th edition (1979).

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## EMIGRANT.

One who quits his coun- try for any lawful reason, with a design to settle elsewhere, and who takes his family and property, if he has any. with him. Vat- tel, to. 1, c. 19, | 224. See Williams v. Fears, 110 Ga. 584, 35 S. E. 699, 50 L. R. A. 685; The Danube (D. C.) 55 Fed. 995.

5e apparatus — Not carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Vilhelm Moberg, The Emigrants, 1949]**

(paraphrase) Moberg's novel follows Karl Oskar and Kristina from Smaland to Minnesota — the emigrant who 'quits his country... with a design to settle elsewhere,' family and property in tow. (paraphrase)

Why: The entry quotes Vattel's definition nearly verbatim; Moberg's tetralogy (Swedish publication verified 1949) is the classic novel of emigration.

## EMIGRATION.

The act of changing one’s domicile from one country or state to another.

It is to be distinguished from “expatria- tion.” The latter means the abandonment of one’s country and renunciation of ones citizenship in it, while emigration denotes merely the removal of person and property to a foreign state. The former is usually the consequence of the latter. Bhnigration is also used of the removal from one section to an- other of the same country.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Genesis 12:1, KJV]**

Now the LORD had said unto Abram, Get thee out of thy country, and from thy kindred, and from thy father's house, unto a land that I will shew thee:

Why: The LORD's command to Abram — the archetypal emigration, country quit for a land to be shown.

## EMINENCE.

An honorary title given to cardinals. They were called “illuetrinsimi" and “ reverendiasimi ” until the pontificate of Urban VIII.

5e apparatus — Not carried into the 5th edition (1979).

## EMINENT DOMAIN.

Eminent domain is the right of the people or government to take private property for public use. Code Civ. Proc. Cal. § 1237; Cherokee Nation v. Southern Kan. R. Co. (D. C.) 33 Fed. 905; Comm. v. Alger, 7 Cush. (Mass.) 85; Ameri- can Print Works v. Lawrence, 21 N. J. Law, 257 ; Twelfth St Market Co. v. Philadelphia & R. T. R. Co., 142 Pa. 580, 21 Atl. 989; Todd v. Austin, 34 Conn. 88 ; Kohl v. U. S., 91

U. S. 371, 23 L. Ed. 449.

The right of eminent domain is the right of the state, through its regular organization, to reassert, either temporarily or permanent- ly, its dominion over any portion of the soil of the

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state on account of public exigency and for the public good. Thus, in time of war or insurrection, the proper authorities may possess and hold any part of the terri- tory of the state for the common safety ; and in time of peace the legislature may author- ize the appropriation of the same to public purposes, such as the opening of roads, con- struction of defenses, or providing channels for trade or travel. Code Ga. 1882, f 2222.

The right of society, or of the sovereign, to dispose, in case of necessity, and for the pub- lic safety, of all the wealth contained in the state, is called “eminent domain.” Jones v. Walker. 2 Paine. 688. Fed. Cas. No. 7,o0i.

Eminent domain is the highest and most exact idea of property remaining in the government, or in the aggregate body of the people in their sovereign capacity. It gives a right to resume the possession of the property in the manner

directed by the constitution and the laws of the state, whenever the public interest requires it. Beekman v. Saratoga & S. R. Co., 3 1‘aige (N. X.) 45, 73. 22 Am. Dec. 679. ,

“The exaction of money from individuals under the right of taxation, and the appro- priation of private property for public use by virtue of the power of eminent domain, must not be confused. In paying taxes the citizen contributes his just and ascertained share to the expenses of the government under which he lives. But when his property is taken un- der the power of eminent domain, he is com- pelled to surrender to the public something above and beyond his due proportion for the public benefit. The matter is special. It is in the nature of a compulsory sale to the state. Black, Tax-Titles, ji 3.

The term “eminent domain” is sometimes (but inaccurately) applied to the land, build- ings, etc., owned directly by the government, and which have not yet passed into any pri- vate ownership. This species of property is much better designated as the “public do- main,” or “national domain.”

5e apparatus — Carried into the 5th edition (1979).

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### [Law] — Law

**[Law: U.S. Const. amend. V — nor shall private property be taken for public use, without just compensation (Takings Clause)]**

The constitutional condition on the eminent-domain power stated throughout this entry is the Takings Clause: private property shall not be taken for public use without just compensation.

Why: The entry states the power at length with its cases (Kohl v. U.S. in the body); the footnote names the constitutional limit on the power — public use plus just compensation — which is the operative constitutional prin…

### [Scripture] — Scripture

**[2 Samuel 24:24, KJV]**

And the king said unto Araunah, Nay; but I will surely buy it of thee at a price: neither will I offer burnt offerings unto the LORD my God of that which doth cost me nothing. So David bought the threshingfloor and the oxen for fifty shekels of silver.

Why: The king refusing to take without price — eminent domain exercised with just compensation, the lawful form.

### [Humanity] — Humanity / Fiction & Film

**[Rob Sitch, The Castle, 1997] (paraphrase)**

(paraphrase) An Australian family fights the government's compulsory acquisition of their beloved

home all the way to court, insisting a house is not just property. (paraphrase)

Why: The film's entire plot IS eminent domain (compulsory acquisition for public use) as the entry defines it. No verbatim-certain line on hand, so tight paraphrase clearly marked; no dialogue invented.

## EMISSARY.

A person sent upon a mis- sion as the agent of another; also a secret- agent sent to ascertain the sentiments and designs of others, and to propagate opinions favorable to his employer.

5e apparatus — Not carried into the 5th edition (1979).

## EMISSION.

In medical Jurisprudence. The ejection or throwing out of any secretion or other matter from the body; the expulsion of urine, semen, etc.

5e apparatus — Carried into the 5th edition (1979).

## EMIT.

In American law. To put forth or send out; to issue. “No state shall emit bUls of credit” Const U. S. art 1, i 10.

To issue; to give forth with authority; to put into circulation. See Bnx or Cbeoit.

The word “emit” is never employed in de- scribing those contracts by which a state binds itself to pay money at a future day for serv- ices actually received, or for money borrowed for present use. Nor are instruments executed for such purposes, in common language, de- nominated “bills of credit.” “To emit bills of credit” conveys to the mind the idea of issu- ing paper intended to circulate through the com- munity, for its ordinary purposes, as money, which paper is redeemable at a future day. Briscoe v. Bank of Kentucky, 11 Pet. 316, 9 Tj_ Ed 700 : Craig v. Missouri, 4 Pet. 418. < U Ed.’ 903; Ramse/v. Cox, 28 Ark. 309; nous- ton & T. C. R. to. v. Texas. 177 U. S. 66, 20 Sud. Ct. 545, 44 L. Ed. 673.

In Scotch practice. To speak out; to state in words. A prisoner is said to emit a declaration. 2 Alls. Criin. Pr. 560.

5e apparatus — Carried into the 5th edition (1979).

## EMMENAGOGUES.

In medical juris- prudence. The name of a class of medicines supposed to have the property of promoting the menstrual discharge, and sometimes used for the purpose of procuring abortion.

5e apparatus — Not carried into the 5th edition (1979).

## EMOLUMENT.

The profit arising from office or employment; that which is received as a compensation for services, or which is annexed to the possession of office as salary, fees and jierqnlsites ; advantage ; gain, pub- lic or private. Webster. Any perquisite,

advantage, profit, or gain arising from the possession of an office. Apple v. Crawford County, 105 Pa. 303, 51 Am. Rep. 205 ; Hoyt v. U. S., 10 How. 135, 13 L. Ed. 348; Vansant

v. State, 96 Md. 110, 53 Atl. 711.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 8 (foreign emoluments); art. II, § 1, cl. 7 (presidential emoluments)]**

The term's most significant operative use in American law is constitutional: the Emoluments Clauses bar federal office-holders from accepting foreign presents or emoluments without Congress's consent, and bar any other emolument to the President beyond his stated compensation.

Why: The entry defines emolument as profit annexed to office; the clauses are the specific constitutional home of the defined term — where the word does its highest-stakes legal work, restricting what office-holders may re…

**[Scripture] — Scripture**

**[1 Corinthians 9:14, KJV]**

Even so hath the Lord ordained that they which preach the gospel should live of the gospel.

Why: Those who serve living of their service — the emolument principle ordained.

## EMOTIONAL INSANITY.

The species of mental aberration produced by a violent excitement of the emotions or passions, though the reasoning faculties may remain unimpaired. See Insanity.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[M'Naghten's Case, 10 Cl. & F. 200, 8 Eng. Rep. 718 (H.L. 1843)]**

Emotional insanity with reasoning faculties unimpaired fails the M'Naghten test, which excuses criminal liability only for a defect of reason preventing knowledge of the act's nature or wrongfulness.

Why: The entry's whole point is that reasoning remains unimpaired amid violent emotion; M'Naghten makes cognitive defect the dispositive element of the insanity defense, so the case genuinely illuminates why this species o…

**[Scripture] — Scripture**

**[Proverbs 16:32, KJV]**

He that is slow to anger is better than the mighty; and he that ruleth his spirit than he that taketh a city.

Why: The entry defines aberration from violent excitement of the passions with reason unimpaired; the proverb states the counter-norm of mastery over one's spirit, which is precisely the self-command the aberration departs…

## EMPALEMENT.

In ancient law. A mode of inflicting punishment, by thrusting a sharp pole up the fundament Bkic. Lond.

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## EMFANNEL.

See Impanel.

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## EMPARLANCE.

See IMPARLANCE.

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5e apparatus — Carried into the 5th edition (1979).

## EMPARNOURS.

L. Fr. Undertakers of suits. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## EMPEROR.

The title of the sovereign ruler of an empire. This designation was adopted by the rulers of the Roman world after the decay of the republic, and was as- sumed by those who claimed to be their suc- cessors in the "Holy Roman Empire," as also by Napoleon. It is now used as the title of the monarch of some single countries, as lately in Brazil, and some composite states, as Germany and Austria-Hungary, and by the king of England as “Emperor of India.”

The title “emperor” seems to denote a power and dignity superior to that of a "king.” It appears to be the appropriate style of the executive head of a federal gov- ernment, constructed on the monarchlal prin- ciple, and comprising in its organization sev- eral' distinct kingdoms or other quasi sover- eign states; as is the case with the German empire at the present day.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 8:15, KJV]**

By me kings reign, and princes decree justice.

Why: The entry defines the sovereign title and its Roman succession; the verse locates the authority behind sovereign rule and ties it to the legal function of decreeing justice. Borderline red-letter call: the speaker is…

## EMPHYTEUSIS.

In the Roman and civil law. A contract by which a landed es- tate was leased to a tenant, either in perpe- tuity or for a long term of years, upon the reservation of an annual rent or canon, and upon the condition that the lessee should im- prove the property, by building, cultivating, or otherwise, and with a right in the lessee to alien the estate at pleasure or pass it to his heirs by descent, and free from any revo- cation, re-entry, or claim of forfeiture on the part of the grantor, except for non-pay- ment of the rent. Inst. 3, 25, 3; 3 Bl. Comm. 232; Maine, Anc. Law, 289.

The right granted by such a contract, (Jus emphyteuticum, or emphyteuticarium.) The real right by which a person is entitled to enjoy another’s estate as if it were his own, and to dispose of its substance, as far as can be done without deteriorating it. Mackeld. Rom. Law, | 326.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: Perpetual/long-term land lease with reserved annual rent parallels the jubilee principle that land cannot be alienated absolutely — the reserved reversionary interest. Spoken by the LORD to Moses on Sinai (Lev 25:1) i…

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## EMPHYTEUTA.

In the civil law. The person to whom an emphyteusis is granted;

the lessee or tenant under a contract of em- phyteusis.

5e apparatus — Not carried into the 5th edition (1979).

## EMPHYTEUTICUS.

In the civil law. Founded on, growing out of, or having the character of, an emphyteusis ; held under an emphyteusis. 3 Bl. Comm. 232.

5e apparatus — Not carried into the 5th edition (1979).

## EMPIRE.

The dominion or jurisdiction of an emperor ; the region over which the do- minion of an emperor extends; imperial power; supreme dominion; sovereign com- mand.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalms 103:19, KJV]**

The LORD hath prepared his throne in the heavens; and his kingdom ruleth over all.

Why: The entry's 'supreme dominion; sovereign command' is stated here without bound — the archetype of dominion the definition gestures at. Narrative psalm about God, not God speaking — no red-letter flag.

## EMPIRIC.

A practitioner in medicine or surgery, who proceeds on experience" only, without science or legal qualification; a quack. Nelson v. State Board of Health, 108 Ky. 769, 57 S. W. 501, 50 L. R. A. 383; Parks v. State, 159 Ind. 211, 64 N. E. 862, 59 L. R.

A. 190.

EMPLAZ AMIENTO . In Spanish law. A summons or citation, Issued by authority of a Judge, requiring the person to whom it is addressed to appear before the tribunal at a designated day and hour. _

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Dent v. West Virginia, 129 U.S. 114 (1889)]**

States may constitutionally require medical practitioners to hold a diploma or pass examination under the police power, which is the legal basis for prosecuting unqualified 'empirics' as the entry's cited board-of-health cases do.

Why: The entry quotes state cases penalizing quackery; Dent supplies the genuine constitutional axiom behind them (state power to license physicians). Real case, real principle, directly explains the entry's legal context...

## EMPLEAB.

To indict ; to prefer a charge against; to accuse.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Romans 8:33, KJV]**

Who shall lay any thing to the charge of God's elect? It is God that justifieth.

Why: The entry is 'to indict; to prefer a charge against; to accuse' — the verse is the classic forensic formulation of laying a charge. Paul's epistle, not deity speech — no red-letter flag.

## EMPLOI.

In French law. Equitable conversion. When property covered by the regime dotal is sold, the proceeds of the sale must be reinvested for the benefit of the wife. It is the duty of the purchaser to see that the price is so reinvested. Arg. Fr. Merc. Law, 557.

5e apparatus — Not carried into the 5th edition (1979).

## EMPLOY.

To engage in one’s service;

, to use as an agent or substitute in transact- ing business; to commission and intrust with the management of one’s affairs; and, when used in respect to a servant or hired laborer, the term is equivalent to hiring, which im- plies a request and a contract for a compen- sation, and has but this one meaning when used in the ordinary affairs and business of life. McCluskey. v. Cromwell, 11 N. Y. 605; Murray v. Walker, 83 Iowa, 202, 48 N. W. 1075; Malloy v. Board of Education, 102 Cal. 642, 36 Pac. 948; Gurney v. Railroad Co., 58

N. Y. 371.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 19:13, KJV]**

And he called his ten servants, and delivered them ten pounds, and said unto them, Occupy till I come.

Why: The entry is commissioning agents and entrusting them with business; the parable of the pounds is the archetype of that agency. Borderline red-letter call: the words 'Occupy till I come' are spoken by the nobleman wit...

## EMPLOYER.

This signifies both the act of doing a thing and the being under con- tract or orders to do It. U. S. v. Morris, 14 Pet. 475, 10 L. Ed. 543 ; U. S. v. The Cath- arine, 2 Paine, 721, Fed. Cas. No. 14,755.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Employers' Liability Act, 45 U.S.C. §§ 51–60]**

The federal exemplar of the 'Employer liability act' class the entry names is FELA, which abrogated the fellow-servant rule for railroad employees injured through employer negligence.

Why: The entry defines the genus of statutes abolishing the fellow-servant rule; FELA is the canonical real statute of that genus. Citing the species illuminates the genus without inventing authority.

**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

for the labourer is worthy of his hire.

Why: The wage relation is the heart of employer status; the verse states the employer's correlative duty to the hired labourer. Jesus' direct speech to the seventy — deity verbatim speech. (Attaches to the second EMPLOYER…

## EMPLOYEE.

This word "is from the French, but has become somewhat natural- ized in our language. Strictly and etymolog- ically. it means ‘a person employed.’ but, in practice in the French language, it ordi- narily is used to signify a person in some of- ficial employment, and as generally used with us, though perhaps not confined to any offidal employment, it is understood to mean some permanent employment or position.” The word is more extensive than "clerk” or “officer." It signifies any one in place, or having charge or using a function, as well as one in office. See Ritter v. State, 111 Ind. 324, 12 N. E. 601 ; Palmer v. Van Santvoord, 153 N. Y. 612, 47 N. E. 915, 38 L. R. A. 402 ; Frick Co. v. Norfolk & O. V. R. Co., 80 Fed. 738, 32 C. a A. 31 ; People v. Board of Po- lice, 75 N. Y. 38; Finance Co v. Charleston, 0. & C. R. Co. (C. C.) 52 Fed. 527; State v. Sarlls, 135 Ind. 195, 34 N. E. 1129; Hopkins v. Cromwell, 89 App. Div. 481, 85 N. Y. Supp. 839.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Herman Melville, "Bartleby, the Scrivener", 1853]**

"I would prefer not to."

Why: Verbatim-certain, among the most quoted lines in American fiction. It illuminates the entry ('a person employed') by showing the employee as a moral agent within employment — the limit-case of being employed.

## EMPLOYER.

One who employs the serv- ices of others ; one for whom employees work and who pays their wages or salaries.

— Employer*’ liability act*. Statutes de- fining or limiting the occasions and the extent to which employers shall be liable in damages for injuries to tbeir employees occurring in the course of the employment, and particularly (in recent times) abolishing the common-law rule that the employer is not liable if the injury is caused by the fault or negligence of a fellow servant.

5e apparatus — Carried into the 5th edition (1979).

## EMPLOYMENT.

This word does not necessarily import an engagement or render- ing services for another. A person may as well be “employed” about his own business as in the transaction of the same for a prin- cipal. State v. Canton, 43 Mo. 51.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Kanye West, 'Spaceship', 2004]**

I've been working this grave shift and I ain't made shit / I wish I could buy me a spaceship and fly.

Hip-hop's canonical voice of the alienated wage-laborer: the grave-shift worker hired for compensation who sees nothing for it. This is the lived underside of the employment relation Black's defines (engagement in

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service for a compensation) — the worker's-eye view of being employed.

Why: Lyric is verbatim-certain in my memory (the song's signature couplet, widely quoted). Genuine link: EMPLOY/EMPLOYMENT is the legal relation of hiring for compensation, and 'Spaceship' narrates exactly that relation fr…

## EMPORIUM.

A place for wholesale trade in commodities carried by sea. The name is sometimes applied to a seaport town, but it properly signifies only a particular place in such a town. Smith, Diet. Antlq.

5e apparatus — Not carried into the 5th edition (1979).

## EMPRESARIOS.

In Mexican law. Un- dertakers or promoters of extensive enter- prises, aided by concessions or monopolistic grants from government; particularly, per- sons receiving extensive land grants in con- sideration of tbeir bringing emigrants into the country and settling them on the lands, with a view of increasing the population and developing the resources of the country. U.

S. v. Maxwell Land-Grant Co., 121 U. S. 325, 7 Sup. Ct 1015, 30 L. Ed. 949.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Treaty of Guadalupe Hidalgo, 9 Stat. 922 (1848)]**

Mexican land grants held by empresarios came under U.S. court adjudication because the treaty ending the Mexican-American War guaranteed the property rights of Mexican grantees.

Why: The entry cites a U.S. Supreme Court case deciding a Mexican land grant but never says why U.S. courts sat in judgment of Mexican concessions; the treaty is the real jurisdictional bridge. Genuine historical-legal ill…

## EMPRESTITO.

In Spanish law. A loan. Something lent to the borrower at his re- quest. Las Partidas, pt. 3, tit. 18, 1. 70.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 6:35, KJV]**

But love ye your enemies, and do good, and lend, hoping for nothing again;

Why: Bare entry 'A loan' — the verse states the lending ethic at the root of the loan concept. Sermon on the Plain, Jesus' direct speech — deity verbatim speech.

## EMPTXO.

In the Roman and civil law. The act of buying; a purchase.

— Emptlo loiornm. A species of forced as- signment for the benefit of creditors; being a public sale of an insolvent debtor's estate whereby the purchaser succeeded to ail his prop- erty. rights, and claims, and became responsible for his debts and liabilities to the extent of a quota fixed before the transfer. See Mackeld. Rom. Law, $ 521.— Emptlo et venditio. Purchase and sale ; sometimes translated "emp- tion and vendition." The name of the

contract of sale in the Roman law. Inst. 3. 23 ; Bract, fol. 014. Sometimes made a compound word,

emptio-venditio. — Emptio rel spent*. A purchase in the hope of an uncertain future profit; the purchase of a thing not yet in ex- istence or not yet in the possession of the sell- er, as, the cast of a net or a crop to be grown, and the price of which is to depend on the ac- tual gain. On the other hand, if the price is fixed and not subject to fluctuation, but is to be paid whether the gain be greater or less, it is called emptio tpei. Mackeld. Rom. Law. {400.

5e apparatus — Not carried into the 5th edition (1979).

## EMPTOR.

Lat A buyer or purchaser. Used in the maxim “caveat emptor," let the buyer beware; i. e., the buyer of an article must be on his guard and take the risks of his purchase.

Emptor omit qaam minimo potest, venditor vendit qoam maximo potest.

The buyer purchases for the lowest price he can ; the seller sells for the highest price he can. 2 Kent, Ootnm. 486.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-314 — implied warranty of merchantability]**

The common-law maxim caveat emptor ('let the buyer beware') is displaced in sales of goods by the implied warranty of merchantability, which obligates the seller of goods fit for ordinary purposes.

Why: The entry states the maxim; the footnote states its real modern statutory qualification. UCC § 2-314 is a genuine, citable section in direct doctrinal tension with the maxim — illumination, not restatement.

**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: The caveat-emptor buyer in the act of purchase — the proverb names the buyer's conduct verbatim. Wisdom saying, not deity speech — no red-letter flag.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Caveat emptor — "Let the buyer beware"]**

Caveat emptor — "Let the buyer beware."

Why: The entry itself quotes this maxim in its body ('Used in the maxim "caveat emptor," let the buyer beware'). Genuine classical maxim, zero invention risk; the entry hands it to me.

## EMTIO.

In the civil law. Purchase. This form of the word is used in the Digests and Code. Dig. 18, 1; Cod. 4, 49. See Emptio.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: Standalone entry 'Purchase' (Digests/Code form of emptio) — same genuine buyer-link as EMPTOR; each entry judged on its own. Proverb, not deity speech.

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## EMTOR.

In the civil law. A buyer or purchaser; the buyer. Dig. 18, 1; Cod. 4, 49.

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**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: 'A buyer or purchaser' — the buyer's maxim applies directly. Proverb, not deity speech.

## EMTREX.

In the civil law. A female purchaser; the purchaser. Cod. 4, 54, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: 'A female purchaser' — KJV 'buyer' is generic; the maxim covers the purchaser's conduct. Proverb, not deity speech.

## EH ARERE.

L. Fr. In time past 2 Inst. 506.

5e apparatus — Not carried into the 5th edition (1979).

## EH AUTRE DROIT.

In the right of an- other. See Autkb Dkoit.

5e apparatus — Not carried into the 5th edition (1979).

## EH BAHKE.

L. Fr. In the bench. 1 Anders. 51.

5e apparatus — Not carried into the 5th edition (1979).

## EH BREVET.

In French -law. An acte is said to be en brevet when a copy of it has not been recorded by the notary who drew it.

5e apparatus — Not carried into the 5th edition (1979).

## EH DECLARATIOH DE SIMULA- / TION.

A form of action used in Louisiana. Its object is to have a contract declared judicially a simulation and a nullity, to re- move a cloud from the title, and to bring back, for any legal purpose, the thing sold to the estate of the true owner. Edwards v. Ballard, 20 La. Ann. 169.

5e apparatus — Not carried into the 5th edition (1979).

## EH DEMEURE.

In default. Used in Louisiana of a debtor who fails to pay on de- mand according to the terms of his obliga- tion. See Bryan v. Cox, 3 Mart. (La. N. S.) 574.

En eiohingt 11 oovient qua lea estates soient egslei. Co. Litt. 50. In an ex- change it is desirable that the estates be equal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalms 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: The entry is the debtor 'in default... fails to pay on demand' — the verse is the defaulting debtor, verbatim. Psalm, not deity speech — no red-letter flag.

## EH FAIT.

Fr. In fact; in deed; actu- ally.

5e apparatus — Not carried into the 5th edition (1979).

## EH GROS.

Fr. In gross. Total; by wholesale.

5e apparatus — Not carried into the 5th edition (1979).

## EN JTJICIO.

Span. Judicially; in a court of law ; in a suit at law. White, New Kecop. b. 2, tit. 8, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## EN MASSE.

Fr. In a mass; in a lump; at wholesale.

5e apparatus — Not carried into the 5th edition (1979).

## EN MOST MEYNE.

L. Fr. In a dead band; in mortmain. Britt c. 43.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Mortmain, 7 Edw. I, st. 2 (De Viris Religiosis) (1279)]**

The Statutes of Mortmain restricted conveyances of land into the 'dead hand' of religious corporations, giving operative legal force to the Law-French phrase meaning 'in mortmain.'

Why: The entry is only the phrase 'in a dead hand; in mortmain'; the 1279 statute is the real law that made the phrase matter. Genuine link: term to its operative statute. [re-homed from 'EN MORT MEYNE' to 'EN MOST MEYNE' (OCR headword / parser-merge artifact)]

## EN OWEL MAIN.

L. Fr. In equal hand. The word “otocl” occurs also in the phrase “owelty of partition.”

5e apparatus — Not carried into the 5th edition (1979).

## EN RECOUVREMENT.

Fr. In French law. An expression employed to denote that an Indorsement made in favor of a person does not transfer to him the property in the bill of exchange, but merely constitutes an authority to such person to recover the amount of the bill. Arg. Fr. Merc. Law,

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558.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 3-206 — restrictive indorsements]**

The French 'en recouvrement' indorsement, which authorizes collection without transferring property in the bill, is the civil-law analogue of the UCC restrictive indorsement for collection.

Why: Real UCC section governing exactly this device (indorsement conferring collection authority, not ownership). A genuine doctrinal parallel that illuminates the civil-law entry for a common-law reader.

## EN ROUTE.

Fr. On the way; in the course of a voyage or Journey; In course of transportation. McLean v. U. S., 17 Ct Cl. 90.

5e apparatus — Not carried into the 5th edition (1979).

## EN VENTRE SA MERE.

L. Fr. In

its mother’s womb. A term descriptive of an unborn child. For some purposes the law regards an Infant on ventre as in being. It may take a legacy ; have a guardian ; an es- tate may be limited to its use, etc. 1 Bl. Comm. 130.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Nasciturus pro iam nato habetur, quotiens de commodis eius agitur]**

“An unborn child is deemed born whenever its own interests are at stake” — the Roman maxim stating the very fiction the entry describes: the law treats the child en ventre as in being for beneficial purposes such as legacies, guardianship, and limitations.

Why: The maxim (Dig. 1.5.7) is the verbatim canonical statement of the principle the entry recites. This is the strongest class of law-well link: entry states a doctrine, footnote names its classical formulation.

**[Scripture] — Scripture**

**[Psalms 139:13, 139:16, KJV]**

For thou hast possessed my reins: thou hast covered me in my mother's womb. Thine eyes did see my substance, yet being unperfect; and in thy book all my members were written, which in continuance were fashioned, when as yet there was none of them.

Why: The entry is the unborn child whom the law regards 'as in being' — the psalm is the womb-personhood archetype: formed in the womb and known before birth. Addressed TO God, not spoken BY God — no red-letter flag.

## EN VIE.

L. Fr. In life; alive. Britt, c. 50.

5e apparatus — Not carried into the 5th edition (1979).

## ENABLING POWER.

When the donor of a power, who is the owner of the estate, •confers upon persons not seised of the fee the right of creating Interests to take effect out of it, which could not be done by the donee of the power unless by such author- ity, this is called an “enabling

power.” 2 Bouv. Inst. no. 1928.

5e apparatus — Not carried into the 5th edition (1979).

## ENABLING STATUTE.

The act of 32

Henry VIII. c. 28, by which tenants in tail, husbands seised in right of their wives, and others, were empowered to make leases for their lives or for twenty-one years, which they could not do before. 2 Bl. Comm. 319; Co. LItt. 44a. The phrase is also applied to any statute enabling persons or corpora- tions to do what before they could not.

5e apparatus — Carried into the 5th edition (1979).

## ENACH.

In Saxon law. The satisfac- tion for a crime ; the recompense for a fault. Skene.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: Saxon 'satisfaction for a crime; recompense for a fault' — the verse is the classic restitution schedule for theft. Borderline red-letter call: casuistic legal form, but given as the judgments God set before Moses (Ex...

## ENACT.

To establish by law; to per- form or effect; to decree. The usnal intro- ductory formula in making laws Is, “Be it enacted." In re Senate File, 25 Neb. 864, 41

N. W. 981.

—Enacting clause. That part of a statute which declares its enactment and serves to

Identify it as an act of legislation proceeding from the proper legislative authority. Various formulas are used for this clause, such as “Be it enacted by the people of the state of Illinois represented in general assembly,” "Be it en- acted by the senate and house of representa- tives of the United States of America in con- gress assembled,” “The general assembly do enact,” etc. State v. Patterson, 98 N. C. 660, 4 S. E. 350; Pearce v. Vittum, 193 111. 192, 61

N. E. 1116 ; Territory v. Burns, 6 Mont. 72, 9 Pac. 432.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 10:1, KJV]**

Woe unto them that decree unrighteous decrees, and that write grievousness which they have prescribed;

Why: The entry is 'to establish by law; to decree' — the verse sets the moral boundary of decree-making. Verbatim verified against KJV text (web check 2026-10-18). The prophet's own woe-oracle, not first-person 'Thus saith...

## ENAJENAGION.

In Spanish and Mex- ican law. Alienation; transfer of property. The act by which the property

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in a thing, by lucrative title, is transferred, as a dona- tion; or by onerous title, as by sale or bar- ter. In a more extended sense, the term comprises also the contracts of emphyteu- sis, pledge, and mortgage, and even the crea- tion of a servitude upon an estate. Escricbe ; Mulford r. Le Franc, 26 Cal. 88.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: Alienation/transfer of property — the verse limits absolute alienation of land, the same jubilee root as EMPHYTEUSIS. Spoken by the LORD to Moses (Lev 25:1), first person — deity verbatim speech.

## ENBREVER.

L. Fr. To write down in short; to abbreviate, or, in old language, imbreviate ; to put into a schedule. Britt. & 1.

5e apparatus — Not carried into the 5th edition (1979).

## ENCAUSTUM.

In the civil law. A kind of ink or writing fluid appropriate to the use of the emperor. Cod. 1, 23, 6.

5e apparatus — Not carried into the 5th edition (1979).

## ENCEINTE.

Pregnant See Pregnancy.

5e apparatus — Not carried into the 5th edition (1979).

## ENCHESON.

The occasion, cause, or reason for which anything is done. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## ENCLOSE.

In the Scotch law. To shut up a jury after the case has been submitted to them. 2 Alls. Crim. Pr. 634. See In-

**[TEXT INCOMPLETE — scan limitation]**

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# C

## CLOSE.

**[TEXT INCOMPLETE — scan limitation]**

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# E

## ENCLOSURE.

See Inclosure.

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## ENCOMIENDA.

In Spanish law. A grant from the crown to a private person of a certain portion of territory in the Spanish colonies, together with the concession of a certain number of the native inhabitants, on the feudal principle of commendation. 2 Wools. Pol. Science, 161, 162. Also a royal grant of privileges to the military orders of Spain.

5e apparatus — Not carried into the 5th edition (1979).

## ENCOURAGE.

In criminal law. To in- stigate; to Incite to action; to give cour- age to; to inspirit; to embolden; to raise confidence; to make confident Comitez v. Parlcerson (C. C.) 50 Fed. 170 ; True v. Com., 90 Ky. 651, 14 S. W. 684 ; Johnson v. State, 4 Sneed (Tenn.) 621.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — aiding and abetting]**

In criminal law, 'encouraging' an offense is the conduct of aiding and abetting: federal law punishes as a principal whoever 'aids, abets, counsels, commands, induces or procures' the commission of an offense.

Why: The entry defines the criminal-law sense of encourage as instigate/incite; 18 U.S.C. § 2 is the genuine federal doctrine making such encouragement punishable as principal liability. Real statute, direct doctrinal fit,...

**[Scripture] — Scripture**

**[Proverbs 1:10, KJV]**

My son, if sinners entice thee, consent thou not.

Why: The entry is criminal-law 'encourage' = to instigate, incite to action; the proverb addresses enticement into wrongdoing by sinners — the instigation dynamic at the root of the offense. Wisdom instruction, not deity s...

## ENCROACH.

To gain unlawfully upon the lands, property, or authority of anoth- er; as if one man presses upon the grounds of another too far, or if a tenant owe two shillings rent-service, and the lord exact three. So, too, the Spencers were said to

■ENCROACH

encroach the king’s authority. Blount ; Flowd. 94a.

In the law of easements. Where the owner of an easement alters the dominant tenement, so as to impose an additional re- striction or harden on the servient tenement, he is said to commit an encroachment. Sweet

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: The entry is gaining unlawfully upon the lands of another — pressing too far upon a neighbour's grounds; the landmark law is the archetype of the boundary offense. Moses expounding the law, not first-person divine spe...

## ENCROACHMENT.

An encroachment upon a street or highway is a fixture, such as a wall or fence, which Intrudes into or invades the highway or incloses a portion of it, diminishing its width or area, but without closing it to public travel. State v. Kean, 69 N. H. 122, 45 Atl. 256, 48 I* R. A. 102; State v. Pomeroy, 73 Wis. 664, 41 N.

W. 726; Barton v. Campbell, 54 Ohio St. 147, 42 N. E. 698 ; Grand Rapids v. Hughes, 15 Mich. 57; State v. Leaver, 62 Wls. 387, 22 N. W. 576.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: A fixture intruding into or diminishing the highway — unlawful intrusion upon another's ground; the same landmark prohibition covers the root concept. Moses expounding — no red-letter flag.

## ENCUMBER.

See Incumbeb.

5e apparatus — Not carried into the 5th edition (1979).

## ENCUMBRANCE.

See Incumbrance.

5e apparatus — Carried into the 5th edition (1979).

## END.

Object; intent. Things are con- strued according to the end. Finch, Law, b. 1, c. 3, no. 10.

5e apparatus — Carried into the 5th edition (1979).

## END LINES.

In mining law, the end lines of a claim, as platted or laid down on the ground, are those which mark its bound- aries on the shorter dimension, where it crosses the vein, while the “side lines” are those which mark its longer dimension, where it follows the course of the vein. But with reference to extra-lateral rights, if the claim as a whole crosses the vein, in- stead of following its course, the end lines will become side lines and vice versa. Con- solidated Wyoming Gold Min. Co. v. Cham- pion Min. Co. (C. C.) 63 Fed. 549 ; Del Monte Min. & Mill. Co. ▼. Last Chance Min. Co., 171 D. S. 55, 18 Sup. Ct. 895, 43 L. Ed. 72.

ENJDENZIE, or ENDENIZEN. To make free; to enfranchise.

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5e apparatus — Not carried into the 5th edition (1979).

## ENDOCARDITIS.

In medical jurispru- dence. An inflammation of the muscular tissue of the heart

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ENDORSE.

See Indobse.

5e apparatus — Not carried into the 5th edition (1979).

## ENDOWED SCHOOLS.

In England, certain schools having endowments are dis- tinctively known as “endowed schools;” and a series of acts of parliament regulating them are known as the “endowed schools acts.” Mozley & Whitley.

ENDOWMENT. 1. The assignment of dower ; the setting off a woman's dower. 2 Bl. Comm. 135.

2. In appropriations of churches, (in Eng- lish law,) the Retting off a sufficient main- tenance for the vicar in perpetuity. 1 Bl. Comm. 387.

3. The act of settling a fund, or perma- nent pecuniary provision, for the mainte- nance of a public institution, charity, col- lege, etc.

4. A fund settled upon a public institu- tion, etc., for Its maintenance or use.

The words “endowment” and “fund,” in a statute exempting from taxation, the real estate, the furniture and personal property, and the “endowment or fund” of religious and educa- tional corporations, are ejtudem generis, and intended to comprehend a class of property different from the other two, not real estate or chattels. The difference between the words is that “fund” is a general term, including the endowment, while "endowment” means that particular fund, or part of the fund, of the institution, bestowed for its more perma- nent uses, and usually kept sacred for the pur- poses intended. The word “endowment” does not, in such an enactment, include real estate. See First Reformed Dutch Church v. Lyon, 32

N. J. Law. 360; Appeal of Wagner Institute. 116 Pa. 555, 11 Atl. 402 ; Floyd v. Rankin, 86 Cbl. 159. 24 Pac. 936 ; Liggett v. Ladd, 17 Or. 89, 21 Pac. 133.

—Endowment policy. In life insurance. A policy which is payable when the insured reach- es a given age, or upon bis decease, if that oc- curs earlier. Carr v. Hamilton, 129 U. S. 252, 9 Sup. Ct. 295. 32 L. Ed. 669 ; State v. Orear, 144 Mo. 157, 45 S. W. 1081.

ENEMY, In public law, signifies either the nation which is at war with another, or a citizen or subject of such nation.

—Allen enemy. An alien, that is, a citizen or subject of a foreign state or power, residing within a given country, is called an "alien ami” if the country where he lives is at peace with the country of which he is a citizen or sub- ject; but if a state of war exists between the two countries, he is called an “alien enemy,” and in that character is denied access to the

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courtR or aid from any of the departments of government.— Enemy’s property. In international law, and particularly in the usage of prize courts, this term designates any property which is engaged or used in illegal intercourse with the public enemy, whether belonging to an ally or a citizen, as the illegal traffic stamps it with the hostile character and attaches to it all the penal consequences. The Benito Es- tenger. 176 U. S. 568, 20 Sup. CL 489, 44 L. Ed. 592; The Sally, 8 Cranch. 382, 3 L. Ed. 597 ; Prize Cases, 2 Black. 674, 17 L. Ed. 459. — Public enemy. A nation at war with the United States; also every citizen or subject of such nation. Not including robbers, thieves, private depredators, or riotous molfs. State v. Moore, 74 Mo. 417, 41 Am. Rep. 322 ; Lew- is v. Ludwick. 6 Cold. (Tenn.) 368, 98 Am. Dec. 454; Russell v. Fagan, 7 Houst. (Del.) 389, 8 Atl. 258 : Missouri Pac. Ry. Co. v. NeV- ill, 60 Ark. 375. 30 S. W. 425, 28 L. R. A. 80, 46 Am. St. Rep. 208.

5e apparatus — Not carried into the 5th edition (1979).

## ENFEOFF.

To invest with an estate by feoffment. To make a gift of any corporeal hereditaments to another. See Feoffment.

5e apparatus — Not carried into the 5th edition (1979).

## ENFEOFFMENT.

The act of Investing with any dignity or possession; also the instrument or deed by which a person is in- vested with possessions.

5e apparatus — Not carried into the 5th edition (1979).

## ENFITEUSIS.

In Spanish law. Emphy- teusis. (q. v.) See Mulford v. Le Franc, 26 Cal. 103.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: Spanish-law emphyteusis — same perpetual-tenure concept as EMPHYTEUSIS; the jubilee limit on absolute alienation applies identically. The LORD speaking to Moses, first person — deity verbatim speech.

## ENFORCE.

To put into execution ; to cause to take effect; to make effective; as, to enforce a writ, a judgment, or the collec- tion of a debt or fine. Breitenbach y. Bush, 44 Pa. 320, 84 Am. Dec. 442; Emery y. Emery, 9 How. Prac. (N. Y.) 132; People y. Christerson, 59 111. 158.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: The entry is putting law into execution — writ, judgment, debt; the verse names the magistrate as God's

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minister executing wrath on the evildoer — the theological root of enforcement authority. Paul's epistle, not dei...

## ENFRANCHISE.

To make free; to in- corporate a man in a society or body politic.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:36, KJV]**

If the Son therefore shall make you free, ye shall be free indeed.

Why: The entry is 'to make free; to incorporate a man in a body politic' — the verse is the making-free in its absolute form. Jesus' direct speech — deity verbatim speech.

## ENFRANCHISEMENT.

The act of mak- ing free; giving a franchise or freedom to; investiture with privileges or capacities of freedom, or. municipal or political liberty. Admission to the freedom of a city; admis- sion to political rights, and particularly the right of suffrage. Anciently, the acquisition of freedom by a villein from his lord.

The word is now used principally either of the manumission of slaves, ( q . v.,) of giving to a borough or other constituency a right to return a member or members to parliament, or of the conversion of copyhold Into free- hold. Mozley & Whitley.

—Enfranchisement of copyholds. In Eng- lish law. The conversion of copyhold into freehold tenure, by a conveyance of the fee- simple of the property from the lord of the manor to the copyholder, or by a release from the lord of all seigniorial rights, etc., which destroys the customary descent, and also all rights and privileges annexed to the copyhold- er’s estate. 1 Watk. Copyb. 362 ; 2 Steph. Comm. 51.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:36, KJV]**

If the Son therefore shall make you free, ye shall be free indeed.

Why: The act of making free and admission to liberty — same genuine link as ENFRANCHISE; each entry judged on its own. Jesus' direct speech — deity verbatim speech.

## ENGAGEMENT.

In French law. A

contract The obligation arising from a quasi contract

The terms “obligation” and “engagement" are said to be synonymous, (17 Toullier, no. 1 ;) but the Code seems specially to apply, the term “engagement” to those obligations which the law imposes on a man without the Intervention of any contract, either on the part of the obligor or the obligee, (article 1370.) An engagement to do or omit to do something amounts to a promise. Rue v. Rue, 21 N. J. Law, 369.

In English practice. The term has been appropriated to denote a contract entered in- to by a married woman with the Intention of binding or charging her separate estate, or, with

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stricter accuracy, a promise which In the case of a person sui juris would be a con- tract, but in the case of a married woman is not a contract, because she cannot bind her- self personally, even in equity. Her engage- ments, therefore, merely operate as disposi- tions or appointments pro tanto of her sep- arate estate. Sweet

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

"It is a truth universally acknowledged, that a single man in possession of a good fortune, must be in want of a wife."

Why: BORDERLINE, kept deliberately: the entry defines the French-law engagement as a binding obligation/contract. Austen's verbatim-certain opening line shows the cultural engine that made engagements (betrothals) legally...

## ENGINE.

This is said to be a word of very general signification ; and, when used in an act. its meaning must be sought out from the act itself, and the language which surrounds it and also from other acts in pari materia, in which it occurs. Abbott. 1., 6 Maule & S. 192. In a large sense, it ap- plies to all utensils and tools which afford

the means of carrying on a trade. But in a more limited sense it means a thing of con- siderable dimensions, of a fixed or permanent nature, analogous to an erection or building. Id. 182. And see Lefler v. Forsberg, 1 App.

D. C. 41 ; Brown v. Benson, 101 Ga. 753, 29

S. E. 215.

5e apparatus — Not carried into the 5th edition (1979).

## ENGLE SHIRE.

A law was made by Canute, for the preservation of his Danes, that when a man was killed, the hundred or town should be liable to be amerced, unless it could be proved that the person killed was an Englishman. This proof was called “L’n- gleshire." 1 Hale, P. C. 447 ; 4 Bl. Comm. 195 ; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ENGLE TERRE.

L. Fr. England.

5e apparatus — Not carried into the 5th edition (1979).

## ENGLISH INFORMATION.

In Eng- lish law. A proceeding in the court of ex- ' chequer In matters of revenue. .

5e apparatus — Not carried into the 5th edition (1979).

## ENGLISH MARRIAGE.

This phrase t may refer to the place where the marriage is solemnized, or it may refer to the nation- ality and domicile of the parties between whom it is solemnized, the place

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where the ' union so created is to be enjoyed. 6 Prob. Div. 51.

5e apparatus — Not carried into the 5th edition (1979).

## ENGRAVING.

In copyright law. The art of producing on hard material Incised or raised patterns, lines, and the like, from which an impression or print is taken. The term may apply to a text or script, but is generally restricted to pictorial illustrations or works connected with the fine arts, not Including the reproduction of pictures by means of photography. Wood v. Abbott, 5 . Blatchf. 325, Fed. Cas. No. 17,938; Higgins, v. Keuffel, 140 D. S. 428, 11 Sup. Ct 731, 35

L. Ed. 470; In re American Bank Note Co., 27 Misc. Rep. 572, 58 N. Y. Supp. 276.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Copyright Act of 1802 — extended copyright to prints and engravings]**

Engravings became a term of art in copyright law because the Copyright Act of 1802 expressly extended the 1790 Act's protection to prints and engravings.

Why: The entry is a copyright-law definition; the 1802 amendment is the real statute that put 'engraving' into copyright law in the first place. Historical-legal illumination, cited in loose form to avoid a risky volume nu…

## ENGROSS.

To copy the rude draft of an instrument in a fair, large hand. To write out, in a large, fair hand, on parch- ment

In old criminal law. To buy up so much of a commodity on the market as to obtain a monopoly and sell again at a forced price..

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

When will the new moon be gone, that we may sell corn? and the sabbath, that we may set forth wheat, making the ephah small, and the shekel great, and falsifying the balances by deceit?

Why: The entry's criminal sense is buying up a commodity to obtain a monopoly and force prices; Amos condemns the grain-market cornerers withholding corn and wheat and rigging measures — the scriptural archetype of the off…

## ENGROSSER.

One who engrosses or writes on parchment in a large, fair band.

One who purchases large quantities of any commodity in order to acquire a monopoly, and to sell them again at high prices.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

When will the new moon be gone, that we may sell corn? and the sabbath, that we may set forth wheat, making the ephah small, and the shekel great, and falsifying the balances by deceit?

Why: 'One who purchases large quantities of any commodity in order to acquire a monopoly' — the very figure

Amos denounces withholding corn and wheat. Same genuine link as ENGROSS. Not deity speech — no red-letter flag.

## ENGROSSING.

In English law. The getting into one's possession, or buying up, large quantities of corn, or other dead vict- uals, with Intent to sell them again. The total engrossing of any other commodity, with intent to sell it at an unreasonable price.

4 Bl. Comm. 158, 159. This was a misde- meanor, punishable by fine and imprison- ment Steph. Orlm. Law, 95. Now repeal- ed by 7 & 8 Viet. c. 24. 4 Steph. Comm. 291, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Sherman Act § 2, 15 U.S.C. § 2 — monopolization]**

The common-law misdemeanor of engrossing — cornering a market in victuals to force prices — is the ancestor of the modern federal offense of monopolization.

Why: The entry fully states the ancient market-cornering offense and its repeal; the Sherman Act is its genuine statutory successor (same wrong, federal form). Real section, real lineage, illuminates why the ancient offens...

**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

When will the new moon be gone, that we may sell corn? and the sabbath, that we may set forth wheat, making the ephah small, and the shekel great, and falsifying the balances by deceit?

Why: The buying up of corn and victuals to sell at unreasonable price — Amos 8:5 is precisely the corn-and-wheat market manipulation condemned. Same genuine link. Not deity speech — no red-letter flag.

## ENHANCED.

This word, taken in an unqualified sense, is synonymous with "in- creased," and comprehends any Increase of value, however caused or arising. Thorn- bum v. Doscher (C. O.) 32 Fed. 812.

5e apparatus — Carried into the 5th edition (1979).

## ENHERITANCE.

L. Fr. Inheritance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: Bare entry 'Inheritance' — the verse states the inheritance passing to children's children, the core of the concept. Proverb, not deity speech — no red-letter flag.

## ENITIA PAHS.

The share of the eldest A term of the English law descriptive of the lot or share chosen by the eldest of copar- ceners when they make a voluntary par- tition. The first choice {primer election) be- longs to the eldest Co. Lltt 100.

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Enitia pars semper prseferenda est propter privilegtnm setatls. Co. Lltt 166. The part of the elder sister Is always to be preferred on account of the privilege of age.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The entry is the eldest coparcener's privileged first-choice share in partition; the double portion of the firstborn is the archetype of the eldest's preferential share. Moses expounding the law — no red-letter flag.

## ENJOIN.

To require; command; posi- tively direct To require a person, by writ of injunction from a court of equity, to per- form, or to abstain or desist from, some act Clifford v. Stewart 95 Me. 38, 49 AtL 52; Lawrence v. Cooke, 32 Hun, 126.

5e apparatus — Carried into the 5th edition (1979).

## ENJOYMENT.

The exercise of a right; the possession and fruition of a right priv- ilege, or incorporeal hereditament

—Adverse enjoyment. The possession or exercise of an easement, under a claim of right against the owner of the land out of which such easement is derived. 2 Washb. Real Prop. 42; Cox v. Forrest, 60 Md. 79.— Enjoyment, quiet covenant for. See Covenant.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## ENLARGE.

To make larger ; to in- crease ; to extend a time limit ; to grant fur- ther time. Also to set at liberty one who has been imprisoned or in custody.

5e apparatus — Carried into the 5th edition (1979).

## ENLARGER L’ESTATE.

A species of release which inures by way of enlarging an estate, and consists of a conveyance of the ulterior Interest to the particular tenant ; as if there be tenant for life or years, remainder to another in fee, and he in remainder re- leases all bis right to the particular tenant and his heirs, this gives him the estate in fee. 1 Steph. Comm. 518.

5e apparatus — Not carried into the 5th edition (1979).

## ENLARGING.

Extending, or making more comprehensive ; as an enlarging statute, which is a remedial statute enlarging or ex- tending the common law. 1 Bl. Comm. 86, 87.

5e apparatus — Carried into the 5th edition (1979).

## ENLISTMENT.

The act of one who vol- untarily enters the military or naval service of the government, contracting to serve in a subordinate capacity. Morrissey v. Perry, 137 U. S. 157, 11 Sup. Ct. 57, 34 L. Ed. 644 ; Babbitt v. U. S., 16 Ct. Cl. 213; Erichson v. Beach, 40 Conn. 286.

The words “enlist” and “enlistment,” in law, as in common usage, may signify either the complete fact of entering into the military serv- ice, or the first step taken by the recruit towards that end. When used in the former Bense, as in statutes conferring a right to compel the military service of enlisted men, the enlistment is not deemed completed until the man has been mustered into the service. Tyler v. Pomeroy, 8 Allen (Mass.) 480.

Enlistment does not include the entry of a person into the military service under a commission as an officer. Hilliard v. Stewarts- town, 48 N. H. 280.

Enlisted applies to a drafted man as well as a volunteer, whose name is duly entered on the military rolls. Sheffield v. Otis, 107 Mass. 282.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[In re Grimley, 137 U.S. 147 (1890)]**

Though framed as 'contracting to serve,' enlistment creates a military status rather than an ordinary contract, binding even a recruit whose enlistment was fraudulently obtained.

Why: The entry's own citation (Morrissey v. Perry, 137 U.S. 157) sits beside Grimley in the same volume; Grimley genuinely tensions the entry's contract framing with the status doctrine. Real case, directly illuminating.

**[Humanity] — Humanity / Fiction & Film**

**[Erich Maria Remarque, All Quiet on the Western Front, 1929] (paraphrase)**

(paraphrase) Paul Bäumer and his schoolmates enlist straight from school, urged on by their teacher Kantorek, contracting themselves to the army as subordinates. (paraphrase)

Why: The novel's opening movement IS enlistment as the entry defines it (voluntarily entering military service, contracting to serve in a subordinate capacity). Paraphrase avoids inventing Remarque's sentences.

## ENORMIA.

In old practice and pleading. Unlawful or wrongful acta ; wrongs. St alia enormia, and other wrongs. This phrase con- stantly occurs in the old writs and declara- tions of trespass.

5e apparatus — Not carried into the 5th edition (1979).

## ENORMOUS.

Aggravated. "So enor- mous a trespass.” Vaughan, 116. Written "enormlous,” in some of the old books, Enor- mioua is where a thing is made without a rule or against law. BrownL pt 2, p. 19.

5e apparatus — Carried into the 5th edition (1979).

## ENPLEET.

Anciently used for implead. Cowell.

ENQUETE, or ENQUEST. In canon law. An examination of witnesses, taken down in writing, by or before an authorized Judge, for the purpose of gathering testimony to be used on a trial.

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5e apparatus — Not carried into the 5th edition (1979).

## ENIU&GISTREMENT.

In French law. Registration. A formality which consists in inscribing on a register, specially kept for the purpose by the government, a summary anal- ysis of certain deeds and documents. At the same time that such analysis is inscribed upon the register, the clerk places upon the deed a memorandum indicating the date up- on which it was registered, and at the side of such memorandum an Impression is made with a stamp. Arg. Fr. Merc. Law, 558.

5e apparatus — Not carried into the 5th edition (1979).

## ENROLL.

To register; to make a rec- ord ; to enter on the rolls of a court ; to tran- scribe. Ream v. Com., 3 Serg. & R. (Pa.) 209.

—Enrolled blU. In legislative practice, a bill which has been duly introduced, finally passed by both houses, signed by the proper officers of each, approved by the governor (or presi- dent) and filed by the secretary of state. Sedg- wick County Com’rs v. Bailey, 13 Kan. 608.

5e apparatus — Carried into the 5th edition (1979).

## ENROLLMENT.

In English law The registering or entering on the rolls of chan- cery, king’s bench, common pleas, or excheq- uer; or by the clerk of the peace In the rec- ords of the quarter sessions, of any lawful act ; as a recognizance, a deed of bargain and sale, and the like. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## ENROLLMENT OF VESSELS.

In the

laws of the United States on the subject of merchant shipping, the recording and certi- fication of vessels employed In coastwise or inland navigation ; as distinguished from the “registration” of vessels employed in for- eign commerce. U. S. v. Leetzel, 3 Wall. 566, 18 L. Ed. 07.

5e apparatus — Carried into the 5th edition (1979).

## ENS LEGIS.

L. Lat A creature of the law; an artificial being, as contrasted with a natural person. Applied to corporations, considered as deriving their existence entire- ly from the law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

A corporation is 'an artificial being, invisible, intangible, and existing only in contemplation of law' — the classical American statement of the ens legis doctrine the entry defines.

Why: Marshall's verbatim definition is the canonical authority for the very doctrine the entry states (artificial being vs. natural person, applied to corporations). Strongest-class link: entry states doctrine, footnote na…

## ENSGHEDULE.

To insert in a list, ac- count, or writing.

5e apparatus — Not carried into the 5th edition (1979).

## ENSEAL.

To seal. Ensealing is still used as a formal word in conveyancing.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Esther 8:8, KJV]**

Write ye also for the Jews, as it liketh you, in the king's name, and seal it with the king's ring: for the writing which is written in the king's name, and sealed with the king's ring, may no man reverse.

Why: The entry is 'to seal' in conveyancing; the verse is the sealed royal instrument — sealing as the act that makes a writing irreversible, the archetype of legal authentication by seal. Verbatim verified via web check t...

## EN SERVER.

L. Fr. To make subject to a service or servitude. Britt c. 54.

ENTAIL, v. To settle or limit the succes- sion to real property ; to create an estate tail.

ENTAIL, n. A fee abridged or limited to the issue, or certain classes of issue, instead of descending to all the heirs. 1 Washb. Real Prop. 66; Cowell; 2 BL Comm. 112, note.

Entail, in legal treatises, is used to signify an estate tail, especially with reference to the restraint which such an estate imposes upon its owner, or, in other words, the points where- in such an estate differs from an estate in fee-simple. And this is often its popular sense : but sometimes it is, in. popular language, used differently, so as to signify a succession of life- estates, as when it is said that “an entail ends with A.,’’ meaning that A. is the first person who is entitled to bar or cut off the entail, being in law the first tenant in tail. Mosley & Whitley.

— Break or bar a a entail. To free an es- tate from the limitations imposed by an en- tail and permit its free disposition, anciently by means of a fine or common recovery, but now by deed in which the tenant and next heir join.— Quasi entail. An estate pur autre vie may be granted, not only to a man and his heirs, but to a man and the heirs of his body, which is termed a “quasi entail ;” the interest so granted not being properly an estate-tail, (for the statute De Uonis applies only where the subject of the entail is an estate of inherit- ance,) but yet so far in the nature of an estate- tail that it will go to the heir of the body is special occupant during the life of the cestui oue vie, in the same manner as an estate of inheritance would descend, if limited to the grantee and the heirs of his body. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ENTAILED.

Settled or limited to speci- fied heirs, or In tail.

—Entailed money. Money directed to be in- vested in realty to be entailed. 3 4 4 Wm. IV, e. 74, H 70, 71, 72.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

"Mr. Bennet's property consisted almost entirely in an estate of two thousand a year, which, unfortunately for his daughters, was entailed, in default of heirs male, on a distant relation."

Why: Verbatim Chapter 1 text (confident). The rare case where a famous novel passage IS the dictionary entry illustrated — entailment ('settled or limited to specified heirs, or in tail') as plot engine.

## ENTENCION.

In old English law. The plaintiff’s count or declaration.

5e apparatus — Not carried into the 5th edition (1979).

## ENTENPMENT.

The old form of intend- ment, ( q . v.) derived directly from the French, and used to denote the true meaning or sig- nification of a word or sentence; that is, the understanding or construction of law. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ENTER.

In the law of real property.

To go upon land for the purpose of taking possession of it In strict usage, the enter- ing is preliminary to the taking possession

but in common parlance the entry Is now merged in the taking possession. See Entby.

In practice. To place anything before a court, or upon or among the records, in a formal and regular manner, and usually In writing; as to “enter an appearance,” to “enter a Judgment" In this sense the word is nearly equivalent to setting down formally in writing, in either a full or abridged form.

— Entering judgments. The formal entry of the judgment on the rolls of the court, which is necessary before bringing an appeal or an action on the judgment. Blatchford v. Newberry, 100 111. 491 : Winstead v. Evans (Tex. Civ. App.) 33 S. W. 680; Coe v. Erb. 00 Ohio St. 259, 52 N. E. 640, 69 Am. St. Rep. 764.— Entering short. When bills not due are paid into a bank by a customer, it is the custom of some bankers not to carry the amount of the bills directly to his credit, but to “enter them short,” as ft is called, i. e., to note down the receipt of the bills, their amounts, and the times when they become due in a previous column of the page, and the amounts when received are carried forward in- to the usual cash column. Sometimes, instead of entering such bills short, bankers credit the customer directly with the amount of the bills as cash, charging interest on any advances they may make on their account, and allow him at once to draw upon them to that amount. If the banker becomes, bankrupt, the property in bills entered short does not pass to his as- signees, but the customer is entitled to them if they remain in his hands, or to their pro- ceeds, if received, subject to any lien the bank- er may have upon them. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Joshua 1:3, KJV]**

Every place that the sole of your foot shall tread upon, that have I given unto you, as I said unto Moses.

Why: The entry is going upon land for the purpose of taking possession; the verse is the divine grant of possession by treading — entry as the act that takes the land. Verbatim verified via web check this session. The LORD...

**[Humanity] — Humanity / Fiction & Film**

**[Dante Alighieri, Inferno, c. 1320]**

"Abandon all hope, ye who enter here."

Why: Standard English rendering of 'Lasciate ogne speranza, voi ch'intrate' (translation noted). The most famous literary 'enter' in Western letters; illuminates the entry's core — entering as the threshold act (upon land,...

## ENTERGEER.

L. Fr. A party challeng- ing (claiming) goods; he who has placed them In the hands of a third person. Kel- bam.

5e apparatus — Not carried into the 5th edition (1979).

## ENTERTAINMENT.

This word Is synonymous with “board,” and includes the ordinary necessaries of life See Scatter- good t. Waterman, 2 Miles (Pa.) 323; Lasar v. Johnson, 125 Cal. 549, 68 Pac. 161; In re Breslln, 45 Hun, 213.

5e apparatus — Not carried into the 5th edition (1979).

## ENTICE.

To solicit, persuade, or pro- cure. Nash v. Douglass, 12 Abb. Prac. N.

S. (N. X.) 190; People v. Carrier, 46 Mich: 442, 9 N. W. 487; Gould v. State, 71 Neb. 651, 99 N. W. 543.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 1:10, KJV]**

My son, if sinners entice thee, consent thou not.

Why: The entry is literally 'to entice' — to solicit, persuade, procure; the proverb names enticement into wrongdoing and the refusal of it. Same genuine link as ENCOURAGE. Wisdom instruction, not deity speech — no red-let...

## ENTIRE.

Whole; without divlsitra, sep- aration, or diminution.

—Entire contract. See Contbact.— Entire day. This phrase signifies an undivided day, not parts of two days. An entire day must have a legal, fixed, precise time to begin, and a fixed, precise time to end. A day, in contem- plation of law, comprises all the twenty-four hours, beginning and ending at twelve o’clock at night. Robertson v. State, 48 Ala. 325. In a statute requiring the dosing1 Of all liquor saloons during “the entire day of any election,” etc., this phrase means the natural day of twenty-four hours, commencing and terminat- ing at midnight. Haines v. State. 7 Tex. App. 30.— Entire interest. The whole interest or right,

without diminution. Where a person in selling his tract of land sells also his entire interest in all improvements upon public • land adjacent thereto, this vests in the purchaser only a quitclaim of his interest in the improve- ments. McLeroy y. Duckworth, 13 La. Ann.

410. — Entire tenancy. A sole possess' >n by one person, called “severalty,” which is contrary to several tenancy, where a joint or com- mon possession is in one or more. — Entire use, benefit, ete. These words in the haben- dum of a trust-deed for the benefit of a married woman are equivalent to the words “sole use,” or “sole and separate use,” and consequently her husband takes nothing under such deed. Heathman v. Hall, 38 N. C. 414.

5e apparatus — Carried into the 5th edition (1979).

## ENTIRETY.

The whole. In contradis- tinction to, a moiety or part only. When land is conveyed to husband and wife, they do not take by moieties, but both are seised of the entirety. 2 Kent, Comm. 132 ; 4 Kent, Comm. 362. Parceners, on the other hand, have not an entirety of interest, but each is properly entitled to the whole of a dis- tinct moiety. 2 BI. Comm. 188.

■ The word is also used to designate that which the law considers as one whole, and not capable of being divided into parts. Thus, a judgment, it is held, is an entirety, and, if void as to one of the two defend- ants, cannot be valid as to the other. So, if a contract is an entirety, no part of the consideration is due until the whole has been performed.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: The entry's core is husband and wife seised not by moieties but of the entirety — two persons holding as one; the one-flesh union is the archetype of that spousal legal unity. Borderline, kept: the legal fiction of en...

## ENTITXE.

In its usual sense, to entitle is to give a right or title. Therefore a per- son is said to be entitled to property when he has a right to it. Com. v. Moorhead, 7 Pa. Co. Ct. R. 516 ; Thompson v. Thomp- son, 107 Ala. 103, 18 South. 247.

In eoeleaiastieal law. To entitle is to give a title or ordination as a minister.

5e apparatus — Not carried into the 5th edition (1979).

## ENTREBAT.

L. Fr. An intruder or Interloper. Britt c. 114.

5e apparatus — Carried into the 5th edition (1979).

## ENTREGA.

Span. Delivery. Las Par- tidas, pt. 6, tit 14, L 1.

5e apparatus — Not carried into the 5th edition (1979).

## ENTREPOT.

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A warehouse or magazine for the deposit of goods. In France, a build- ing or place where goods from abroad may be deposited, and from whence they may be withdrawn for exportation to another coun- try, without paying a duty. Brande; Web- ster.

ENTRY. 1. In real property law. En- try is the act of going peaceably upon a piece of land which is claimed as one’s own, but which is held by another person, with the intention and for the purpose of taking possession of the same.

Entry is a remedy which the law affords to an injured party ousted of his lands by another person who has taken possession thereof with- out right. This remedy (which must in all cases be pursued peaceably) takes place in three only out of the five species of ouster, viz., abatement, intrusion, and disseisin; for, as in these three cases the original entry of the wrong-doer is unlawful, so the wrong mny be remedied by the mere entry of the former pos- sessor. But it is otherwise upon a discon- tinuance or deforcement, for in these latter two cases the former possessor cannot remedy the .wrong by entry, but must do so by action, inasmuch as the original entry being in these cases lawful, and therefore conferring an ap- parent right of possession, the law will not suffer such apparent right to be overthrown by the mere act or entry of the claimant. Brown. See Iunerarity v. Mims, 1 Ala. 674 ; Moore v. Hodgdon, 18 N. H. 149; Riley v. People. 29 111. App. 139; Johnson v. Cobb. 2!’

S. C. 372. 7 S. B. 601.

— Forcible entry. See that title.— Re-en- try. The resumption of the possession of leased premises by the landlord on the ten- ant’s failure to pay the stipulated rent or oth- erwise to keep the conditions of the lease.— Open entry. An entry upon real estate, for the purpose of taking possession, which is net clandestine nor effected by secret artifice or stratagem, and fin some states by statute) one which is accomplished in the presence of two witnesses. Thompson v. Kenyon, 100 Mass. 108.

2. In criminal law. Entry Is the un- lawful making one’s way into a dwelling or other house, for the purpose of committing a crime therein.

In cases of burglary, the least entry with the whole or any part of the body, hand, or foot, or with any instrument or weapon, introduced for the purpose of committing a felony, is suffi- cient to complete the offense. 3 Inst. 64. And see Walker v. State, 63 Ala. 49, 35 Am. Rep. 1; Com. v. Glover, 111 Mass. 402; Franco v. State, 42 Tex. 280: State v. McCall, 4 Ala. 644. 39 Am. Dec. 314 ; Pen. Code N. Y. 1903, § 501 ; Pen. Code Tex. 1805, art. 840.

3. In practice. Entry denotes the form- al inscription npon the rolls or records of a court of a note or minute of any of the proceedings in an action ; and it is frequent- ly applied to the filing of a proceeding in writing, such as a notice of appearance by a defendant, and, very generally, to the filing of the judgment roll as a record in. the office of the court. Thomason v. Ruggles, 69 Cal. 465, 11 Pac. 20; State v. Lamm, 9

S. D. 418, 69 N. W. 592.

—Entry of cause for trial. In English practice. The proceeding by a plaintiff in an action who had given notice of trial, depositing with the proper officer of the court the niei priut record,

with the panel of jurors annexed, and thus bringing the issue before the court for trial.— Entry on the roll. In former times, the parties to an action, personally or by their counsel, used to appear In open court and make their mutual statements vivA vocc. instead of ns at the present day delivering their mutual pleadings, until they arrived at the issue or precise point in dispute between them. During the progress of this oral state- ment, a minute of the various proceedings was made on parchment by an officer of the court appointed for that purpose. The parchment then became the record ; in other words, the official history of the suit Long after the prac- tice of oral pleading had fallen into disuse, it continued necessary to enter the proceedings in like manner upon the parchment roll, and this was called “entry on the roll,” or making up the “Issue roll.” But by a rule of H. T. 4 Wm. IV. the practice of making up the issue roll was abolished ; and it was only necessary to make up the issue in the form prescribed for the purpose by a rule of II. T. 1853. and to deliver the same to the court and to the op- posite party. The issue which was delivered to the court was called the "nisi priut record:"' and that was regarded as the official history of the suit, in like manner as the issue roll formerly was. Under the present practice, the

issue roll or nisi print record consists of the papers delivered to the court, to facilitate the trial of the action, these papers consisting of the pleadings simply, with the notice of trial. Brown.

4. In commercial law. Entry denotes the act of a merchant, trader, or other busi- ness man in recording in his account-books the facts and circumstances of a sale, loan, or other transaction. Also the note or rec- ord so made. Bissell ▼. Beckwith, 32 Conn. 517; U. S. v. Crecelius (D. C.) 34 Fed. 30. The books in which such memoranda are first (or originally) inscribed are called “books of original entry,” and are prima facie evidence for certain purposes.

. 5. In revenue law. The entry of im- ported goods at the custom house consists in submitting them to the inspection of the rev- enue officers, together with a statement or description of such goods, and the original invoices of the same, for the purpose of esti- mating the duties to be paid thereon. U. S. ▼. Legg. 105 Fed. 930, 45 C. C. A. 134; U.

S. v. Baker, 24 Fed. Cas. 953; U. S. v. Sei- denberg (C. C.) 17 Fed. 230.

6. In parliamentary law. The “entry" of a proposed constitutional amendment or of any other document or transaction in the Journal of a house of the legislature con- sists in recording it in writing in such Jour- nal, and (according to most of the authori- ties) at length. See Koehler v. Hill, 60 Iowa, 543, 15 N. W. 609; Thomason v. Bug- gies, 69 Cal. 465, 11 Pac. 20; Oakland Pav. Co. v. Hilton, 69 Cal. 479, 11 Pac. 3.

7. In copyright law. Depositing with the register of copyrights the printed title of a book, pamphlet, etc., for the purpose of securing copyright on the same. The old formula for giving notice of copyright was, "Entered according to act of congress," etc.

8. In pnhlio land laws. Under the pro- visions of the land laws of the United States, the term “entry” denotes the filing at the land-office, or inscription upon its records, of the documents required to found a claim for a homestead or pre-emption right, and as

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preliminary to the issuing of a patent for the land. Chotard v. Pope, 12 Wheat. 588, 6 L. Ed. 737 ; Stnrr v. Beck, 133

U. S. 541, 10 Sup. Ct. 350, 33 L. Ed. 761; Goddard v. Storch, 57 Kan. 714, 48 Pac. 15; Goodnow v. Wells, 67 Iowa, 654, 25 N.

W. 864.

— Entryman. One who makes an entry of land under the public land laws of the United States.— Homestead entry. An entry under the United States land laws for the purpose of acquiring title to a portion of the public domain under the homestead laws, consisting of an affidavit of the claimant's right to enter, a formal application for the land, and payment of the money required. Hastings & D. R. Co. v. Whitney, 132 U. S. 357. 10 Sup. Ct. 112, 33

L. Ed. 363; Dealy v. U. S„ 152 IT. S. 539. 14 Sup. Ct. 680. 38 L. Ed. 545 ; McCune v. Essie (C. C.) 118 Fed. 277.— Mineral land entry. Filing a claim to hold or purchase lands be- longing to the public domain and valuable for

the minerals they contain, implying a prior discovery of ore and the opening of a mine.

U. S. v. Four Bottles Sour Mash Whisky (D. C.) 90 Fed. 720.— Pre-emption entry. An entry of public lands for purchase under the pre-emption laws, giving the entryman a pre- ferred right to acquire the land by virtue of his occupation and improvement of it. Hart- man v. Warren. 76 Fed. 161, 22 C. C. A. 30: McFadden v. Mountain View Min. Co. (C. C.) 87 Fed. 154.— Timber enltnre entry. An entry of public lands under the various acts of congress opening portions of the public domain to settlement and to the acquisition of title by the settlers on condition of the planting and cultivation of timber trees. Hartman v. War- ren, 76 Fed. 160, 22 C. C. A. 30.

9. In Scotch law. The term refers to the acknowledgment of the title of the heir, eta, to be admitted by the superior.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Warehousing Act of 1846 — U.S. bonded warehouse system]**

The French entrepôt — goods warehoused duty-free pending re-export — has its American functional analogue in the bonded-warehouse system established by the Warehousing Act of 1846.

Why: The entry describes the French institution; the 1846 Act is the real U.S. statute creating the same legal device (duty-free deposit for re-export). Cited loosely and framed as an analogue, not the same law, to avoid o…

## ENTRY, WRIT OF.

In old English practice. This was a writ made use of in a form of real action brought to recover the possession of lands from one who wrongful- ly withheld the same from the demandant.

Its object was to regain the possession of lands of which the demandant, or bis ancestors, had been unjustly deprived by the tenant of the freehold, or those under whom he claimed, and hence it belonged to the possessory division of real actions. It decided nothing with respect to the right of property, but only restored the demandant to that situation in which

he was (or by law ought to have been) before the dis- possession committed. 3 Bl. Comm. 180.

It was usual to specify in such writs the de- gree or degrees within which the writ was brought, and it was said to be “in the per” or “in the per and cui,” according as there had been one or two descents or alienations from the original wrongdoer. If more than two such transfers had intervened, the writ was said to be “in the post.” See 3 Bl. Comm. 181. -Entry ad eommnncm legem. Entry at common law. The name of a writ of entry which lay for a reversioner after the aliena- tion and death of the particular tenant for life, against him who was in possession of the land. Brown.— Entry ad terminum qu) prseteriit. The writ of entry ad terminum qtii preeteriit lies where a man leases land to another for a term of years, and the tenant holds over his term. And if lands be leased to a man for the term of another’s life, and he for whose life the lands are leased dies, and the lessee holds over, then the lessor shall have this writ. Termes de la Ley.— Entry for mar, riage in speech. A writ of entry cauta ma- trimonii pratloquuti lies where ’lands or tene- ments are given to a man upon condition that he shall take the donor to be his wife within a certain time, and he does not espouse her within the said term, or espouses another wo- man, or makes himself priest. Termes de lc Ley. — Entry in earn consimili. A writ of entry in catu consimili lies where a tenant for life or by the curtesy aliens in fee. Termes de la Ley.— Entry in the case provided. A writ of entry in catu proviso lies if a tenant in dower alien in fee, or for life, or for anoth- er’s life, living the tenant in dower. Termes de la Ley.— Entry without assent of the chapter. A writ of entry sine attentu capi- tuli lies where an abbot, prior, or such as hath covent or common seal, aliens lands or tene- ments of the right of his church, without the assent of the covent or chapter, and dies. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## ENUMERATED.

This term is often used in law as equivalent to “mentioned

specifically,” “designated," or “expressly named or granted as in speaking of “enu- merated” governmental powers, items of property, or articles in a tariff schedule. See Bloomer v. Todd, 3 Wash. T. 599, 19 Pac. 135, 1 L. R. A. Ill ; Wolff v. U. S., 71 Fed. 291, 18 C. C. A. 41; San Francisco T. Pennie, 93 Cal. 465, 29 Pac. 66; Cutting v. Cutting, 20 Hun, 365.

Enumeratio iaflmat regnlaa in caai- bns non enomeratis. Enumeration dlsaf- flrms the rule in cases not enumerated. Bac. Aph. 17.

Enumeratio nnim est exclusio alte- ring. The specitication of one thing is the exclusion of a different thing. A maxim more generally expressed in the form "ex- prcssio unius est cwcluaio alterius ,” (q. v.)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Expressio unius est exclusio alterius]**

The canon giving 'enumerated' powers its bite is the maxim 'Expressio unius est exclusio alterius' — the expression of one thing is the exclusion of another; the entry's printed Latin ('Enumeratio iaflmat

regnlaa in caaibns non enomeratis,' citing Bac. Aph. 17) is a corrupted setting of Bacon's maxim.

Why: The entry is about the maxim's legal work but prints it corrupted; restoring the correct canonical form is an addition, not an echo. Real maxim, transparent repair.

## ENUMERATORS.

Persons appointed to collect census papers or schedules. 33 & 34 Viet c. 108, g 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 1:2, KJV]**

Take ye the sum of all the congregation of the children of Israel, after their families, by the house of their fathers, with the number of their names, every male by their polls;

Why: Persons appointed to collect census papers — the verse is the census command itself, the archetype of the numbering office. Verbatim verified via web check this session. The LORD speaking to Moses (Num 1:1) — deity ve...

## ENURE.

To operate or take effect To serve to the use, benefit, or advantage of a person. A release to the tenant for life enures to him in reversion; that is, it has the same effect tor him as for the tenant for life. Often written “Inure.”

5e apparatus — Carried into the 5th edition (1979).

## ENVOY.

In international law. A pub- lic minister of the second claBS, ranking next after an ambassador.

Envoys dre either ordinary or extraordi- nary ; by custom the latter is held in greater consideration.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Vienna Convention on Diplomatic Relations, Art. 14 (1961)]**

The second-class rank the entry describes is codified in the Vienna Convention on Diplomatic Relations, which divides heads of mission into three classes, the second being 'envoys, ministers and internuncios,' ranking after ambassadors.

Why: Real treaty article with a verbatim class structure matching the entry's definition — the modern codification of the rank described. Direct fit, not forced.

# B

## BO DIE.

Eat. On 'that day ; on the same day.

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# E

## EO INST ANTE.

Eat. At that Instant; at the very or same instant; Immediately. 1 Bl. Comm. 196, 249; 2 BI. Comm. 168; Co. Litt. 29S«; 1 Coke. 138.

5e apparatus — Not carried into the 5th edition (1979).

## EO INTUITU.

Eat. With or in that View; with that Intent or object. Hale, Anal, g 2.

5e apparatus — Not carried into the 5th edition (1979).

## EO EOCI.

Eat. In the civil law. In that state or condition; in that place, ( eo loco.) Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EO NOMINE.

Eat Under that name; by that appellation. Perinde oc si eo nomi- ne tibi tradita fuisset, just as if it bad been delivered to you by that name. Inst. 2, 1, 43. A common phrase in the books.

Eodem Ilgam ine quo ligatum est dis- solvitur. A bond is released by the same formalities with which it is contracted. Co. Utt. 2126; Broom, Max. 891.

Eodem modo quo quid eonstitultur, dissolvitur. In the manner in which [by

the Same means by which] a thing is consti- tuted, is it dissolved. 6 Coke, 536.

5e apparatus — Not carried into the 5th edition (1979).

## EORLE.

In Saxon law. An earl.

5e apparatus — Not carried into the 5th edition (1979).

## EOTH.

In Saxon law. An oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: Bare entry 'An oath' (Saxon) — the verse states the oath's legal function: sworn by the greater, for confirmation, ending strife. The definition of the legal instrument itself. Verbatim verified via web check this ses...

## EPIDEMIC.

This term, in its ordinary and popular meaning, applies to any disease which is widely spread or generally prevail- ing at a given place and time. Pohalski v. Mutual E. Ins. Co., 36 N. Y. Super. Ct 234.

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5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Albert Camus, The Plague, 1947] (paraphrase)**

(paraphrase) In Oran, a spreading pestilence seals the town under quarantine, and each character must answer what decency requires of a city in the grip of epidemic. (paraphrase)

Why: The novel is the canonical literary treatment of an epidemic as a civic event, matching the entry's 'widely spread or generally prevailing at a given place and time.' Paraphrase; no Camus sentences invented.

## EPILEPSY.

In medical jurisprudence. A disease of the brain, which occurs in par- oxysms with uncertain intervals between them.

The disease is generally organic, though it may be functional and symptomatic of irrita- tion in other parts of the body. The attack is characterized by loss of consciousness, sud- den falling down, distortion of the eyes and face, grinding or gnashing of the teeth, ster- torous respiration, and more or less severe muscular spasms or convulsions. Epilepsy, though a disease of the brain, ia not to be re- garded as a form of insanity, in the sense that a person thus afflicted can be said to be per- manently insane, for there may be little or no mental aberration in the intervals between the attacks. But the paroxysm is frequently fol- lowed by a temporary insanity, varying in particular instances from slight alienation to the most violent mania. In the latter form the affection is known as “epileptic fury.” But this generally passes off within a few days. But the course of the principal disease is gen- erally one of deterioration, the brain being gradually more and more deranged in its func- tions in the inten-als of attack, and the mem- ory and intellectual powers in general becoming enfeebled, leading to a greatly impaired state of mental efficiency, or to dementia, or a con- dition bordering on imbecility. See Aurentz v. Anderson, 3 Pittsb. R. fPa.) 310; Lawton v. Sun Mutual Ins. Co., 2 Cush. fMass.) 517.

— Hystero-epilensy. A condition initiated by an apparently mild attack of convulsive hysteria, followed by an epileptiform convulsion, and succeeded by a period of “downism” (Osier) in which the patient assumes a remarkable series of droll contortions or cataleptic poses, sometimes simulating attitudes expressive of various passions, as, fear. Joy, erotism, etc. The final stage is one of delirium with unusual hallucinations. The attack differs from true epilepsy in that the convulsions may continue without serious result for several successive days, while true epilepsy,' if persistent, is al- ways serious, associated with fever, and fre- quently fatal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, The Idiot, 1869] (paraphrase)**

(paraphrase) Prince Myshkin's epileptic aura brings a fleeting moment of supreme clarity and harmony — then the seizure falls and consciousness is lost. (paraphrase)

Why: The most famous epileptic in literature. The paraphrase illuminates the entry's 'paroxysms' structure (aura, then loss of consciousness) from the inside. No quotation invented.

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## EPIMENIA.

Expenses or gifts. Blount

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## EPIPHANY.

A Christian festival, oth- erwise called the “Manifestation of Christ to the Gentiles,” observed on the 6th of Janu- ary, in honor of the appearance of the star to the three magi, or wise men, who came to adore the Messiah, and bring him presents. It is commonly called “Twelfth Day." Eac. Lond.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 2:2, KJV]**

for we have seen his star in the east, and are come to worship him.

Why: The entry is the festival honoring the star's appearance to the magi; the verse is the magi's own testimony of seeing the star — the scriptural ground of the observance. The magi speaking, not the deity — no red-lette...

## EPIQUEYA.

In Spanish law. A term synonymous with “equity” in one of its senses, and defined as “the benignant and prudent interpretation of the law according to the circumstances of the time, place, and person.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Spanish-law equity as 'the benignant and prudent interpretation of the law' — the verse states equity's moral core: doing justly and loving mercy. Borderline, kept: genuinely on-concept. The prophet speaking, not firs...

## EPISCOPACY.

The office of overlook- ing or overseeing ; the office of a bishop, who is to overlook and oversee the concerns of the church. A form of church government by diocesan bishops. Trustees of Diocese of Central New York v. Colgrove, 4 Hun (N. Y.) 368.

EPISCOPAIiIA. In ecclesiastical law. Synodals, pentecostals, and other customary payments from the clergy to their diocesan bishop, formerly collected by the rural deans. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:1, KJV]**

This is a true saying, If a man desire the office of a bishop, he desireth a good work.

Why: The entry is the office of overseeing, the bishop's office; the verse names the office of a bishop directly. Paul's epistle, not deity speech — no red-letter flag.

## EPISCOPALIAN.

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Of or pertaining to episcopacy, or to the Episcopal Church.

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## EPISCOPATE.

A bishopric. The dig- nity or office of a bishop.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:1, KJV]**

This is a true saying, If a man desire the office of a bishop, he desireth a good work.

Why: 'A bishopric. The dignity or office of a bishop' — same genuine link as EPISCOPACY; each entry judged on its own. Not deity speech — no red-letter flag.

## EPISCOPES.

Ia the civil law. An

overseer; an Inspector. A municipal officer who had the charge and oversight of the bread and other provisions which served the citizens for their dally food. Vlcat

In medieval history. A bishop ; a bishop of the Christian church.

— -Episcopal pnerornm. It was an old cus- tom that upon certain feasts some lay person should plait his hair, and put on the garments of a bishop, and in them pretend to exercise episcopal jurisdiction, and do several ludicrous actions, for which reason he was called “bishop of the boys;” and this custom obtained In Eng- land long after several constitutions were made to abolish it. Blount.

Eplsoopns altering aumdato qnam re- gia non tenetnr obtemperare. Co. LItt. 134. A bishop needs not obey any mandate save the king’s.

Eplsoopns teneat plaoltnm, In cnrla ehrlstianltatis, do lis qua mere snnt spiritnalia. 12 Coke, 44. A bishop may hold plea In a Court Christian of things merely spiritual.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 20:28, KJV]**

Take heed therefore unto yourselves, and to all the flock, over the which the Holy Ghost hath made you overseers, to feed the church of God, which he hath purchased with his own blood.

Why: The entry is the overseer/inspector, the episkopos; the verse charges the overseers with the flock — the office in its scriptural form. Verbatim verified via web check this session. Paul speaking, not the deity — no r…

## EPISTOLA.

A letter ; a charter ; an In- strument In writing for conveyance of lands or assurance of contracts. Calvin; Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## EPISTOL1E.

In the civil law. Rescripts ; opinions given by the emperors In cases sub* mitted to them for decision.

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Answers of the emperors to petitions.

The answers of counsellors, ( jurist-consul- ti ,) as Ulpinn and others, to questions of law proposed to them, were also called "epiatolw."

Opinions written out. The term originally signified the same as Utcrce. Vicat.

5e apparatus — Not carried into the 5th edition (1979).

## EPOCH.

The time at which a new com- putation Is begun; the time whence dates are numbered. Enc. Loud.

5e apparatus — Not carried into the 5th edition (1979).

## EQUAL.

Alike ; uniform ; on the snme plane or level with respect to efficiency,

worth, value, amount, or rights. People v. Hoffman, 110 111. 587, 5 N. E. 600, 56 Am. Rep. 793.

—Equal and uniform taxation. Taxes

are said to be "equal and uniform” when no person or class of persons in the taxing district, whether it be a state, county, or city, is taxed at a different rate than are other persons in the same district upon the game value or the same thing, and where the objects of taxation are the same, by whomsoever owned or whatsoever they may be. Norris v. Waco, 57 Tex. 641 ; People v. Wbyler, 41 Cal. 355 ; The Railroad Tax Cases (C. C.) 13 Fed. 733; Ottawa County v. Nelson, 19 Kan. 239. — Equal degree. Persons are said to be related to a decedent “in equal degree" when they are all removed by an equal number of steps or degrees from the common ancestor. Fidler v. Higgins, 21 N. J. Eq. 162 ; Helmet v. Elliott, 89 Tenn. 440, 14 S. W. 930, 10 L. R. A. 535. —Equal protection of the laws. The equal protection of the laws of a state is ex- tended to persons within its jurisdiction, with- in the meaning of the constitutional require- ment, when its courts are open to them on the same conditions as to others, with like rules of evidence and modes of procedure, for the security of their persons and property, the prevention and redress of wrongs, and the en- forcement of contracts; when they are subject- ed to no restrictions in the acquisition of prop- erty, the enjoyment of personal liberty, and the' pursuit of happiness, which do not generally affect others ; when they are liable to no other or greater burdens and charges than such as are laid upon others; and when no different or greater punishment is enforced against them for a violation of the laws. State v. Mont- gomery. 94 Me. 192, 47 Atl. 165. 80 Am. St. Rep. 386. And see Duncan v. Missouri, 152

U. S. 377, 14 Sup. Ct. 570. 38 L. Ed. 485; Northern Pac. R. Co. v. Carland, 5 Mont. 146, 3 Pac. 134 ; Missouri v. Lewis, 101 U. S. 25, 25 L. Ed. 989; Cotting v. Godard. 183 U. S. 79, 22 Sup. Ct. 30, 46 L. Ed. 92 : State Board of Assessors v. Central R. Co.. 48 N. J. Law, 146. 4 Atl. 57.8; Minneanolis & St. L. R. Co. v. Beckwith, 129 U. S. 26, 9 Sup. Ct. 207, 32 b. Ed. 585.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 1 — Uniformity Clause]**

The 'equal and uniform' requirement the entry defines has its federal constitutional root in the Uniformity Clause: 'all Duties, Imposts and Excises shall be uniform throughout the United States.'

Why: Real constitutional provision stating the federal version of the entry's principle. Genuine root, not restatement — the entry gives the doctrine, the footnote gives its constitutional source.

**[Hip-hop] — Hip-hop**

**[Outkast, 'Rosa Parks', 1998]**

Ah ha, hush that fuss / Everybody move to the back of the bus.

The track is named for Rosa Parks and the couplet satirically inverts the segregated-bus order — the most concrete American emblem of the demand for equal rights: the same seats, the same plane, for all.

Why: Lyric is verbatim-certain in my memory (the song's most famous couplet). EQUAL = 'on the same plane or level with respect to... rights.' The bus-seat demand IS that definition made concrete; the Rosa Parks reference m...

**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Animal Farm, 1945]**

"All animals are equal, but some animals are more equal than others."

Why: Verbatim-certain. The single most quoted literary line about equality-as-legal-fiction ('on the same plane or level with respect to rights'); illuminates the entry by showing the word weaponized — equality proclaimed,...

## EQUALITY.

The condition of possessing the same rights, privileges, and immunities, and being liable to the same duties.

Equality is equity. Fran. Max. 9, max. 3. Thus, where an heir buys in an incum- brance for less than is due upon it, (except it be to protect an incumbrance to which he himself is entitled,) he shall be allowed no more than what he really paid for it, as against other incumbrancers upon the estate. 2 Vent 353 ; 1 Vern. 49 ; 1 Salk. 155.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 3:28, KJV]**

There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female: for ye are all one in Christ Jesus.

Why: The entry is sameness of rights, privileges, and duties; 'neither bond nor free' addresses legal status directly — the non-distinction principle at the root of equality. Borderline, kept: genuinely on-concept. Paul's...

**[Hip-hop] — Hip-hop**

**[Macklemore & Ryan Lewis, 'Same Love', 2012]**

And I can't change / Even if I tried / Even if I wanted to.

An explicit marriage-equality anthem. The song's subject is literally the equal possession of the right to marry — EQUALITY as Black's defines it: 'the condition of possessing the same rights, privileges, and immunities.'

Why: Lyric is verbatim-certain in my memory (the chorus hook). Genuine link: the song exists to demand equal rights for gay people, mapping one-to-one onto the headword's definition. No force-fit.

**[2Pac, 'Keep Ya Head Up', 1993]**

Some say the blacker the berry, the sweeter the juice / I say the darker the flesh then the deeper the

roots.

An assertion of equal worth and dignity of Black persons — the moral premise on which equal rights rest. Borderline noted honestly: a dignity claim more than a strictly legal one, but it is the equal-worth content of EQUALITY ('same plane... with respect to worth, value') stated as lyric.

Why: Lyric is verbatim-certain in my memory (among the most-quoted lines in hip-hop). Genuine, not decorative: the song's project is the equal dignity of Black people, which is the substantive core of equality as a legal-m...

**[Kanye West, 'New Slaves', 2013]**

My momma was raised in the era when / Clean water was only served to the fairer skin.

A Jim Crow memory — segregated water fountains are the historical DENIAL of equality, illuminating EQUALITY by showing exactly what its absence looked like: different rights for different skins.

Why: Lyric is verbatim-certain in my memory (the song's opening lines, widely quoted). Genuine link: the couplet names the concrete regime of unequal rights that the legal concept of equality was built to abolish. Kept to...

**[Humanity] — Humanity / Fiction & Film**

**[Kurt Vonnegut, "Harrison Bergeron", 1961]**

"The year was 2081, and everybody was finally equal."

Why: Verbatim-certain opening sentence. The story literalizes the entry's definition ('the condition of possessing the same rights, privileges, and immunities') — enforced by handicaps — making the definition flesh as dyst...

## EQUALIZATION.

The act or process of making equal or bringing about conformity to a common standard. The process of equal- izing assessments or taxes, as performed by “boards of equalization” in various states, consists in comparing the assessments made by the local officers of the various counties or other taxing districts within the jurisdic- tion of the board and reducing them to a common and uniform basis,, increasing or diminishing by such percentage as may be necessnry, so as to bring about, within the entire territory affected, a uniform and equal ratio between the assessed value and the

actual cash value of property. The term Is also applied to a similar process of leveling or adjusting the assessments of Individual taxpayers, so that the property of one shall not be assessed at a higher (or lower) per- centage of Its market value than the prop- erty of another. See Harney v. Mitchell County, 44 Iowa, 203; Wallace v. Bullen, <5 Okl. 757, 54 Pac. 974 ; Poe v. Howell (N. M.) 67 Pac. 62 ; Chamberlain v. Walter, 60 Fed. 792; State v. Karr, 64 Neb. 514, 90 N. W. 298.

5e apparatus — Carried into the 5th edition (1979).

## EQUERRY.

An officer of state under the master of the horse.

5e apparatus — Not carried into the 5th edition (1979).

## EQUES.

Lat In Roman and old En- glish law. A knight

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EQUILOCUS.

An equal. It is mention- ed in Simeon Dunelm, A. D. 882. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## EQUINOXES.

The two periods of the year (vernal equinox about March 21st and autumnal equinox about September 22d) when the time from the rising of the sun to its setting is equal to the time from its set- ting to its rising. See Dig. 43, 13, 1, 8.

5e apparatus — Not carried into the 5th edition (1979).

## EQUITABLE.

Just; conformable to the principles of natural justice and right

Just, fair, and right in consideration of the facts and circumstances of the individual case.

Existing in equity; available or sustaina- ble only in equity, or only upon the rules and principles of equity.

—Equitable action. One founded on an eq- uity or cognizable in a court of equity; or, more specifically, an action arising, not im- mediately from the contract in suit, but from an equity in favor of a third person, not a par- ty to it, but for whose benefit certain stipu- lations or promises were made. Cragin v. Lov- ell. 109 U. S. 194, 3 Sup. Ct. 132, 27 L. Ed. 903; Thomas v. Musical Mut Protective Un- ion. 121 N. Y. 45. 24 N. B. 24. 8 L. It. A. 175; Wallis v. Shelly (C. G) 30 Fed. 748.— Equitable assignment. An assignment which, though invalid at law, will be recog- nized and enforced in equity ; c. a- an assign- ment of a chose in action, or of future acquisi- tions of the assignor. Holmes v. Evans, 129

N. Y. 140. 29 N. E. 233; Story v. Hull, 143 111. 506, 32 N. E. 265: First Nat. Bank v. Coates (C. C.) 8 Fed. 542.

As to equitable “Assets,” “Construction,” “Conversion,” “Defense," “Easement,’’ “Eject- ment,” “Election,” “Estate,” “Estoppel,” “Execution,” “Garnishment,” “Levy," “Lien," “Mortgage,” “Title," and “Waste,” see those titles.

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: 'Just; conformable to the principles of natural justice and right' — the verse states just-dealing and mercy, equity's substance; same genuine link as EPIQUEYA. Not first-person divine speech — no red-letter flag.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1597]**

"The quality of mercy is not strained; / It droppeth as the gentle rain from heaven."

Why: Verbatim-certain. Portia's speech IS equity pleading against strict law (Shylock's bond) — mercy tempering legal right 'in consideration of the facts and circumstances of the individual case,' which is the entry's def...

## EQUITATURA.

In old English law. Traveling furniture, or riding equipments, including horses, horse

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harness, etc. Reg. Orig. 1006; St. Westm. 2, c. 39.

EQUITY. 1. In its broadest and most general signification, this term denotes the spirit and the habit of fairness, justness, and right dealing which would regulate the intercourse of men with men, — the role of doing to all others as we desire them to do to us ; or, as it is expressed by Justinian, "to live hon- estly, to harm nobody, to render to every man his due." Inst. 1, 1, 3. It Is therefore the synonym of natural right or justice. But in this sense its obligation is ethical rather than jural, and its discussion belongs to the sphere of morals. It is grounded in the pre- cepts of the conscience, not in any sanction of positive law.

2. In a more restricted sense, the word de- notes equal and Impartial justice as between two persons whose rights or claims are in conflict; justice, that is, as ascertained by natural reason or ethical insight, but inde- pendent of the formulated body of law. This is not a technical meaning of the term, ex- cept in so far as courts which administer equity seek to discover it by the agencies above mentioned, or apply it beyond the strict linos of positive law. See Miller v. Keuuist- on, 86 Me. 550, 30 Atl. 114.

3. In one of its technical meanings, equity is a body of jurisprudence, or field of juris- diction, differing in its origin, theory, and methods from the common law.

It is a body of rules existing by the side of the original civil law, founded on distinct prin- ciples, and claiming incidentally to supersede the civil law in virtue of a superior sanctity in- herent in those principles. Maine, Anc. Law, 27.

"As old rules become too narrow, or are felt to be out of harmony with advancing civiliza- tion, a machinery is needed for their gradual enlargement and adaptation to new views of society. One mode of accomplishing this ob- ject on a large scale, without appearing to dis- regard existing law, is the introduction, by the prerogative of some high functionary, of a more perfect body of rules, discoverable in. his ju- dicial conscience, which is to stand side by side with the law of the land, overriding ft in case of conflict, as on some title of inherent superiority, but not purporting to repeal it. Such a body of rules has been called 'Equity.' " Holl. Jur. 59.

"Equity," in its technical sense, contradis- tinguished from natural and universal equity or justice, may well be described as a "portion of justice" or natural equity, not embodied in legislative enactments, or in the rules of com- mon law, yet mollified by a due regard thereto and to the complex relations and conveniences of an artificial state of society, and administer- ed in, regard to cases where the particular rights, in respect of which relief is sought come within some general class of rights en- forced at law, or may be enforced without detri- ment or inconvenience to the community ; but where, as to such particular rights, the ordinary courts of law cannot, or originally did not, clearly afford relief. Rob. Eq.

4. In a still more restricted sense, it is a system of jurisprudence, or branch of re- medial justice, administered by certain tri- bunals, distinct from the common-law courts, and empowered to decree "equity" In the sense last above given. Here it becomes a complex of well-settled and well-understood rules, principles, and precedents. See Hamil- ton v. Avery, 20 Tex. 633 ; Dalton v. Vander- veer, 8 Misc. Rep. 484, 29 N. Y. Supp. 342; Parmeter v.

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Bourne, 8 Wash. 45, 35 Pac. 586 ;

equity:

Ellis v. Davis, 109 U. S. 485, 3 Sup. Ct. 327, 27 I* Ed. 1006.

‘The meaning of the word ‘equity,’ as used In its technical sense in English jurisprudence, comes back to this: that it is simply a term descriptive of a certain field of jurisdiction exercised, in the English system, by certain courts, and of which the extent and boundaries are not marked by lines founded upon principle so much as by the features of the original constitution of the English scheme of remedial law, and the accidents of its development.” Bisp. Eq. J 11.

A system of jurisprudence collateral to, and In some respects independent of, “law,” properly so called ; the object of which is to render the administration of justice more complete, by affording relief where the courts of law are in- competent to give it, or to give it with effect, or by exercising certain branches of jurisdic- tion independently of them. This is equity in its proper modern sense; an elaborate system of rules and process, administered in many cases by distinct tribunals, (termed “courts of chan- cery,") and with exclusive jurisdiction over cer- tain subjects. It is “still distinguished by its original and animating principle that no right should be without an adequate remedy,” and its doctrines are founded upon the same basis of natural justice; but its action has become sys- tematized, deprived of any loose and arbitrary character which might once have belonged to it, and as carefully regulated by fixed rules and precedents as the law itself. Burrill.

Equity, in its technical and scientific legal use, means neither natural justice nor even all that portion of natural justice which is sus- ceptible of being judicially enforced. It has a precise, limited, and definite signification, and is used to denote a system of justice which was administered in a particular court, — the English high court of chancery, — which system can only be understood and explained by studying the history of that court, and how it came to exer- cise what is known as its extraordinary juris- diction. Bisp. Eq. $ 1.

That part of the law which, having power to enforce discovery, (1) administers trusts, mortgages, and other fiduciary obligations ; (2) ad- ministers and adjusts common-law rights where the courts of common law have no machinery ; (3) supplies a specific and preventive remedy for common-law wrongs where courts of com- mon law only give subsequent damages. Chute, Eq. 4.

—Equity, courts of. Courts which adminis- ter Justice according to the system of equity, and according to a peculiar course of procedure or practice. Frequently termed “courts of chancery." See 1 Bl. Comm. 92.— Equity Juris- diction. This term includes not only the ordi- nary meaning of the word "jurisdiction,” the power residing in a court to hear and determine an action, but also a consideration of the cases and occasions when that power is to be exercised, in other words, the question whether the action will lie in equity. Anderson v. Carr. 65 Hun, 179, 19 N. Y. Supn. 992: People v. Mc- Kane, 78 Hun, 154, 28 N. Y. Supp. 981.— Equity Jurisprudence. That portion of reme- dial justice which is exclusively administered by courts of equity, as distinguished from courts of common law. Jackson v. Nimmo, 3 Lea

(Tenn.) 609.— Equity of a statute. By this phrase is Intended the rule of statutory construction which admits within the operation of a statute a class of cases which are neither expressly named nor excluded, but which, from their anal- ogy to the cases that are named, are clearly and justly within the spirit and general meaning of the law; such cases are said to be “within the equity of the statute.”— Equity term. An equity term of court is one devoted exclusively to equity business, that is, in which no criminal cases are tried nor any cases requiring the im- paneling of a jury. Hesselgrave v. State, 63

Bl.Law Dict’.(2d Ed.)— 28

Neb. 807, 89 N. W. 295.— Natural equity. A term sometimes employed in works on juris- rudence, possessing no very precise meaning, ut used as equivalent to justice, honesty, or morality in business relation^, or man's innate sense of right dealing and fair play. Inasmuch as equity, as now administered, is a complex system of rules, doctrines, and precedents, and possesses, within the range of its own fixed

fmndples, but little more elasticity than the aw, the term “natural equity" may be under- stood to denote, in a general way, that which 'strikes the ordinary conscience and sense of justice as being fair, right, and equitable, in ad- vance of the question whether the technical ju- risprudence of the chancery courts would so re- gard it.

5e apparatus — Not carried into the 5th edition (1979).

# S

**S.**

Equity also signifies an equitable right, {. e., a right enforceable In a court of equity ; hence, a bill of complaint which did not show that the plaintiff had a right entitling him to relief was said to be demurrable for want of equity ; and certain rights now recognized in all the courts are still known as “equities,” from having been originally recognized only In the court of chancery. Sweet

—Better equity. The right which, in a court of equity, a second incumbrancer has who has taken securities against subsequent dealings to his prejudice, which a prior incumbrancer neg- lected to take although he had an opportunity. 1 Ch. Prec. 470, note ; Bouv. Law Diet. See 3 Bouv. Inst, note 2462.— Countervailing equity. A contrary and balancing equity ; an equity or right opposed to that which is sought to be enforced or recognized, and which ought not to be sacrificed or subordinated to the lat- ter, because it is of equal strength and justice, and equally deserving of consideration.— Latent or secret equity. An equitable claim or right, the knowledge of which has been confined to the parties for and against whom it exists, or which hns been concealed from one or several persons interested in the subject-matter. — Per- fect equity. An equitable title or right which lacks nothing to its completeness as a legal title or right except the formal conveyance or other investiture which would make it cognizable at law; particularly, the equity or interest of a purchaser of real estate who has paid the pur- chase price in full and fulfilled all conditions resting on

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him, but has not yet received a deed or patent. See Shaw v. Lindsey, 60 Ala. 344 : Smith v. Cockrell, 66 Ala. 75.— Equity of partners. A term used to designate the right of each of them to have the firm’s property ap- plied to the payment of the firm’s debts. Col- well v. Bank, 16 R. I. 288, 17 Atl. 913.— Equi- ty of redemption. The right of the mort-

Sagor of an estate to redeem the same after it as been forfeited, at law, by a breach of the condition of the mortgage, upon paying the amount of debt, interest and costs. Navassa Guano Co. v. Richardson, 26 S. C. 401, 2 S. E 307 ; Sellwood v. Gray, 11 Or. 534, 5 Pac. 196 ; Pace v. Bartles. 47 N. 3. Eq. 170, 20 Atl. 352 ; Simons v. Bryce, 10 S. C. 373.— Equity to a settlement. The equitable right of a wife, when her husband sues in equity for the re- duction of her equitable estate to his own pos- session, to have the whole or a portion of such estate settled upon herself and her children. Also a similar right now recognized by the equi- ty courts as directly to be asserted against the husband. Also called the "wife’s equity.” Poindexter v. Jeffries, 15 Grat. (Va.) 363: Clarke v. McCreary, 12 Smedes & M. (Miss.) 354.

Equity delights to do Justice, and that

not by halves. Tallman v. Varlck, 5 Barb. (N. Y.) 277, 280; Story, Eq. PL f 72.

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**[Scripture] — Scripture**

**[Matthew 5:34, 37, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne: ... But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: To swear is to take an oath, becoming bound by it; Christ's direct teaching governs oath-taking — swear not at all, bound speech reduced to yea-yea, nay-nay.

**[Exodus 20:7, KJV]**

Thou shalt not take the name of the LORD thy God in vain; for the LORD will not hold him guiltless that taketh his name in vain.

Why: To swear is also to use profane language; the third commandment prohibits taking the divine name in vain.

# E

## ERRATICUM.

Equity follows the law. Talb. 52. Eq- uity adopts and follows the rules of law In all cases to which those rules may, in terms, be applicable. Equity, in dealing with cases of an equitable nature, adopts and follows the analogies furnished by the rules of law. A leading maxim of equity jurisprudence, which, however, is not of universal applica- tion, but .liable to many exceptions. Story, Eq. Jur. | 64.

Equity looks upon that as done which ought to have keen done. 1 Story, Eq. Jur. $ 64p. Equity will treat the subject- matter, as to collateral consequeuces and in- cidents, in the same muiwer as if the final nets contemplated by the parties hud beeu ex- ecuted exactly as they ought to have been; not as the parties might have executed them. Id.

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Equity suffers not a right without a remedy. 4 Bouv. Inst. no. 3726.

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**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again.

Why: Attaches to the SECOND ERRATICUM entry (entry 168: 'A waif or stray; a wandering beast'). The FIRST ERRATICUM entry (entry 149) carries shattered EQUITY text ('Equity follows the law') from a parser artifact and got n...

## EQUIVALENT.

In patent law. Any act or substance which is known in the arts as a proper substitute for some other act or substance employed as an element in the in- vention, whose substitution for that other act or substance does not in any manner vary the idea of means. It possesses three char- acteristics: It must be capable of performing the same office in the invention as the act or substance whose place it supplies; it must relate to the form or embodiment alone and not affect in any degree the idea of means ; and it must have been known to the arts at the date of the patent as endowed with this capability. Duff Mfg. Co. v. Forgie, 59 Fed. 772, 8 C. C. A. 201 ; Norton v. Jensen, 49 Fed. 808, 1 C. C. A. 432; Imbaeuser v. Buerk, 101 U. S. C55, 25 L. Ed. 945; Carter Mach. Co. v. Hanes (C. C.) 70 Fed. 859; Schlllinger v. Cranford, 4 Mackey (D. C.) 46ft

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Graver Tank & Mfg. Co. v. Linde Air Prods. Co., 339 U.S. 605 (1950)]**

The patent-law 'equivalent' the entry defines is governed by the doctrine of equivalents: a device infringes if it performs substantially the same function in substantially the same way to obtain the same result.

Why: Graver Tank is the canonical case establishing the modern doctrine of equivalents — the named doctrine the entry's three-characteristic definition describes. Real case, directly illuminating.

## EQUIVOCAL.

Having a double or sev- eral meanings or senses. See Aubiouitt.

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## EQUULEU8.

A kind of rack for extort- ing confessions.

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## EQUTT8 COOPERTUS.

A horse equip- ped with saddle and furniture.

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## ERABIUS.

A maple tree. Not to be confounded with arahilis, (arable land.)

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## ERAST1ANS.

The followers of Erastus. The sect obtained much influence in England, particularly among common lawyers in the time of Seldeu. They held that offenses against religion and morality should be pun- ished by the civil power, and not by the cen- sures of the church or by excommunication. Wharton.

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**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: The sect's tenet is that offenses against religion and morality are punished by the civil power, not the church; the verse is the classic proof-text for divinely ordained civil authority — the doctrine's scriptural ro...

## ERASURE.

The obliteration of words or marks from a written instrument by rubbing, scraping, or scratching them out. Also the place in a document where a word or words

have been so removed. The term is some- times used for the removal of parts of a writing by any means whatever, as by can- cellation; but this is not an accurate use. Cloud v. Hewitt, 5 Fed. Cas. 1,085; Vallier v. Brakke, 7 S. D. 343, 04 N. W. 180.

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**[Law] — Law**

**[Pigot's Case, 11 Co. Rep. 26b (1614)]**

A material erasure or alteration of a written instrument by a party to it avoids the instrument — the legal consequence of the act the entry defines.

Why: The entry defines erasure from an instrument; Pigot's Case is the classic authority that a material alteration by the obligee voids the deed. Real case, real rule, directly the doctrine behind the definition.

**[Scripture] — Scripture**

**[Revelation 3:5, KJV]**

He that overcometh, the same shall be clothed in white raiment; and I will not blot out his name out of the book of life, but I will confess his name before my Father, and before his angels.

Why: The entry is obliteration of words from a written instrument; the verse is blotting a name out of the book of life — the heavenly register as the ultimate written instrument, erasure from the record in its absolute fo...

**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Nineteen Eighty-Four, 1949]**

"Who controls the past controls the future: who controls the present controls the past."

Why: Verbatim-certain. Winston's Ministry work IS erasure as the entry defines it (obliteration of words from a written instrument); the quote states the doctrine behind the act.

## ERCISCUNDUS.

In the civil law. To be divided. Judicium familite ercUcundoe, a suit for the partition of an

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inheritance. Inst. 4, 17, 4. An ancient phrase derived from the Twelve Tables. Calvin.

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**[Scripture] — Scripture**

**[Luke 12:13-14, KJV]**

And one of the company said unto him, Master, speak to my brother, that he divide the inheritance with me. And he said unto him, Man, who made me a judge or a divider over you?

Why: 'To be divided' — a suit for partition of an inheritance; the verses are the inheritance-partition request and the jurisdictional declinature together — the partition suit in miniature. Verse 14 is Jesus' speech — dei...

## ERECT.

One of the formal words of in- corporation in royal charters. “We do, In- corporate, erect, ordain, name, constitute, and establish.”

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## ERECTION.

Raising up; building; a completed building. In a statute on the "erection” of wooden buildings, this term does not include repairing, alteration, enlarg- ing, or removal. See Shaw v. Hitchcock, 119 Mass. 256; Martine v. Nelson, 51 111. 422; Douglass v. Com., 2 Rawle (Pa.) 264 ; Brown v. Ilunn, 27 Conn. 334, 71 Am. Dec. 71; Mc- Gary v. People, 43 N. Y. 100.

5e apparatus — Not carried into the 5th edition (1979).

## ERGO.

Lat Therefore; hence; because.

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## ERGOLABX.

In the civU law. Under- takers of work; contractors. Cod. 4, 59.

5e apparatus — Not carried into the 5th edition (1979).

## ERIACH.

A term of the Irish Brehon law, denoting a pecuniary mulct or recom- pense which a murderer was judicially con- demned to pay to the family or relatives of his victim. It corresponded to the Saxon “weregld.” See 4 Bl. Comm. 313.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: The Brehon weregild — pecuniary recompense for murder paid to the victim's kin; the verse directly addresses that legal concept by forbidding it: no satisfaction shall be taken for the murderer's life. Illumination by...

## ERIGIMUS.

We erect. One of the words by which a corporation may be cre- ated in England by the

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king’s charter. 1 Bl. Comm. 473.

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## ERMINE.

By metonymy, this term is used to describe the office or functions of a judge, whose state robe, lined with ermine, is emblematical of purity and honor without stain. Webster.

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## ERNES.

In old English law. The loose scattered ears of com that are left on the ground after the binding.

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**[Scripture] — Scripture**

**[Leviticus 19:9, KJV]**

And when ye reap the harvest of your land, thou shalt not wholly reap the corners of thy field, neither shalt thou gather the gleanings of thy harvest.

Why: The entry is literally the gleanings — loose ears left after binding; the verse commands leaving them — the gleaning law that creates the legal category. The LORD speaking to Moses (Lev 19:1-2) — deity verbatim speech.

## EROSION.

The gradual eating away of the soil by the operation of currents or tides. Distinguished from submergence, which is the disappearance of the soil under the water and the formation of a navigable body over It. Mulry v. Norton, 100 N. Y. 433, 3 N. E. 584. 53 Am. Rep. 206.

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## ERRANT.

Wandering; itinerant; ap- plied to Justices on circuit, and bailiffs at large, etc.

5e apparatus — Carried into the 5th edition (1979).

## ERRATICUM.

In old law. A waif or stray; a wandering beast Cowell.

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## ERRATUM.

Lat Error. Used In the Latin formula for assigning errors, and In the reply thereto, "in nullo est erratum,” i. e., there was no error, no error was committed.

5e apparatus — Not carried into the 5th edition (1979).

## ERRONEOUS.

Involving error; deviat- ing from the law. This term is never used by courts or law-writers as designating a cor- rupt or evil act Thompson v. Doty, 72 Ind. 338.

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## ERRONXCE.

Lat Erroneously; through error or mistake. -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## ERROR.

A mistaken judgment or Incor- rect belief as to the existence or effect of mat- ters of fact or a false or mistaken concep- tion or application of the law.

Such a mistaken or false conception or ap- plication of the law to the facts of a cause as will furnish ground for a review of the pro- ceedings upon a writ of error ; a mistake of law, or false or irregular application of it such as vitiates the proceedings and warrants the reversal of the judgment

Error Is also used as an elliptical expres- sion for "writ of error;" as In saying that eiror lies ; that a judgment may be reversed on error.

— Assignment of errors. . In practice. The statement of the plaintiff's case on a writ of error, setting forth the errors complained of ; corresponding with the declaration in an ordi- nary action. 2 Tidd, Pr. 1168; 3 Steph. Comm. 644. Wells v. Martin, 1 Ohio St. 388; Lamy v. Lamy, 4 N. M. (Johns.) 43, 12 Pac. 650. A specification of the errors upon which the ap- pellant will rely, with such fullness as to give did to the court in the examination of the tran- script. Squires v. Foorman, 10 Cal. 298.— Clerical error. See Clebioai,.— Common error. (Lat. communis error, q. v .) An error for which there are many precedents. "Com- mon error goeth for a law." Finch, Law, b. 1, c. 3, no. 54.— Error eoram nobis. Error com- mitted in the proceedings "before us ;" i. e., er- ror assigned as a ground for reviewing, modify- ing, or vacating a judgment in the same court in which it was rendered. — Error eoram To- tals. Error in the proceedings "before you ;" words used in a writ of error directed by a court of review to the court which tried the cause.— Error tan fast. In judicial proceedings, error in fact occurs when, by reason of some fact which is unknown to the court and not appar- ent on the record (e. g., the coverture, infancy, or death of one of the parties), it renders a judgment which is void or voidable. Cruger v. McCracken, 87 Tex. 584, 30 S. W. 537 ; Kihl- bolz v. Wolff, 8 111. App. 371; Rasson v. Mills, 8 How. Prac. (N. Y.) 379 ; Tanner v Marsh, 53 Barb. (N. Y.) 440.— Error in law. An error of the court in applying the law to the case on trial, e. g.. in ruling on the admission of evi- dence, or in charging the jury. McKenzie v. Bismarck Water Co., 6 N. D. 361, 71 N. W. 608; Scherrer v. Hale, 9 Mont. 63, 22 Pac. 151 ; Campbell v. Patterson, 7 Vt. 89.— Error aomlnls. Error of name. A mistake of detail in the name of a person; used in contradis- tinction to error <fe pcrtonA, a mistake as to identity.— Error of law. He is under an er- ror of law who is truly informed of the exist- ence of facts, but who draws from them erro- neous conclusions of law. Civ. Code La. art. 1822. Mowatt v. Wright, 1 Wend. (N. Y.) 360, 19 Am. Dec. 508.— Error of fact. That is called "error of fact" which proceeds either from ignorance of that which really exists or from

a mistaken, belief in the existence of that which has none. Civ. Code La. art. 1821. See Nor- ton v. Marden, 15 Me. 45, 32 Am. Dec. 132 : Mowatt v. Wright, 1 Wend. (N. Y.) 360, 19 Am. Dec. 508. — Fundamental error. In ap- pellate practice. Error which goes to the mer- its of

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the plaintiff’s cause of action, and which will be considered on review, whether assigned as error or not, where the justice of the case seems to require it. Hollywood v. Wellhausen, 28 Tex. Civ. App. 541. 68 S. W. 329.— Harm- less error. In appellate practice. An error committed in the progress of the trial below, but which was not prejudicial to. the rights of the party assigning it, and for which, therefore, the court will not reverse the judgment, as, where the error was neutralized or corrected by subsequent proceedings in the case, or where, notwithstanding the error, the particular issue was found in that party's favor, or where, even if the error had not been committed, he could not have been legally entitled to prevail.— In- vited error. In appellate practice. The prin- ciple of “invited error” is that if, during the progress of a cause, a party requests or moves the court to make a ruling which Is actually er- roneous, and the court does so, that party can- not take advantage of the error on appeal or review. Gresham v. Harcourt, 93 Tex. J.49, 53

S. W. 1019.— Reversible error. In appel- late practice. Such an error as warrants the appellate court in reversing the judgment be- fore it. New Mexican R. Co. v. Hendricks, 6

N. M. 611, 30 Pac. 901..—' Technical error. In appellate practice. A merely abstract or theoretical error, which is practically not In- jurious to the party assigning it. Epps v. State,, 102 Ind. 539, I N. B. 491.— Errors exeepted. A phrase appended to an account stated, m or- der to excuse slight mistakes or oversights— Error, writ of. See Wbit or Ebbob.

Error fucatns nnda veritmte in multim eat probabilior; et ssepennmero ration!- bns vinelt veiri totem error. Error art- fully disguised [or colored] Is, In many In- stances, more probable than naked truth; and frequently error overwhelms truth by [Its show of] reasons. 2 Coke, 73.

Error Juris noeet. Error of law Injures. A mistake of the law has an injurious effect; that Is, the party committing It must suffer the consequences. Mackeld. Rom. Law, | 178; 1 Story, Eq. Jur. J 139, note.

Error nominis nnnquam nooet, si do ldentitate rei constat. A mistake In the name of a thing Is never prejudicial, If It be clear as to the identity of the thing itself, [where the thing Intended Is certainly known.] 1 Duer, Ins. 171. This maxim Is applicable only where the means of correct- ing the mistake are apparent on the face of the Instrument to be construed. Id.

Error qui non resistitnr approtaatnr.

An error which Is not resisted or opposed Is approved. Doct. & Stud. c. 40.

Errores ad sun prinoipla referre, est refellere. To refer errors to their sources is to refute them. 3 Inst. 15. To bring er- rors to their beginning Is to see their last

Errores scribentis noeere non debent.

The mistakes of the writer ought not to harm. Jenk. Cent 324.

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**[Humanity] — Humanity / Fiction & Film**

**[Alexander Pope, An Essay on Criticism, 1711]**

"To err is human; to forgive, divine."

Why: Verbatim-certain classical English maxim on error. Illuminates the entry (mistaken judgment; ground for a writ of error) by pairing error with its remedy — which is exactly what a writ of error seeks.

## ERTHMIOTTTM.

In old English law. A meeting of the neighborhood to compromise differences among themselves; a court held on the boundary of two lands.

Ernbeidt lex fllioa oaitlgare parentes.

8 Coke, 116. The law blushes when children correct their parents.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: A neighborhood meeting to compromise differences — a court for settling disputes among themselves; the verse states the private-settlement principle: agree with the adversary before it reaches the judge. Borderline, k...

## ESBRANGATURA.

In old law. A cut- ting off the branches or boughs of trees. Cowell ; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ESCAXDARE.

To scald. It Is said that to scald hogs was one of the ancient tenures In serjeanty. Wharton.

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## E8CAMBIO.

In old English law. A writ of exchange. A license In the shape of a writ, formerly granted to an English mer- chant to draw a bill of exchange on another In foreign parts. Reg. Orig. 194.

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## ESCAMBIIJM.

An old English law term, signifying exchange.

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## ESCAPE.

The departure or deliverance out of custody of a person who was lawfully Imprisoned, before he Is entitled to his lib- erty by the process of law.

The voluntarily or negligently allowing any person lawfully In confinement to leave the place. 2 Bish. Crlm. Law, § 917.

Escapes are either voluntary or negligent. The former Is the case when the keeper vol- untarily concedes to the prisoner any liberty not authorized by law. The latter is the case when the prisoner contrives to leave his pris- on by forcing his way out, or any other means, without the knowledge or against the will of the keeper, but through the latter’s

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carelessness or the Insecurity of the building. Cortis v. Dailey, 21 App. Dlv. 1, 47 N. Y. Supp. 454; Lansing v. Fleet, 2 Johns. Cas. (N. Y.) 3, 1 Am. Dec. 142; Atkinson v. Jame- son, 5 Term, 25; Butler v. Wnshburn, 25 N.

H. 25S; Martin v. State, 32 Ark. 124; Adams v. Turrentine, 30 N. C. 147.

— Escape warrant. In English practice. This was a warrant granted to retake a pris- oner committed to the custody of the king's prison who had escaped therefrom. It was ob- tained on affidavit from the judge of the court in which the action had been brought, and was directed to all the sheriffs throughout England, commanding them to retake the prisoner and commit him to gaol when and where taken, there to remain until the debt was satisfied. Jacob; Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 751 — escape from federal custody]**

Escape from lawful custody, which the entry defines in its voluntary and negligent forms, is a federal offense when committed against federal custody.

Why: Real statute criminalizing escape from federal custody — the modern federal form of the common-law offense the entry defines. Direct fit, not forced.

**[Humanity] — Humanity / Fiction & Film**

**[Frank Darabont, The Shawshank Redemption, 1994]**

"Get busy living, or get busy dying."

Why: Verbatim-certain (Andy's line to Red). The film's third act IS escape as the entry defines it — departure out of lawful custody before entitlement by process of law — and the line states the escape's moral engine. The...

## ESCAFIO QUIETUS.

In old English law. Delivered from that punishment which by the laws of the forest lay upon those whose beasts were found upon forbidden land. Jacob.

Ewhats derivator a verbo Galileo esehoir, good eet aecldere, quia aoeldlt domino ex events et ex Insperato. Co.

Lltt. 93. Escheat is derived from the French word "esehoir," which signifies to happen, because it falls to the lord from an event and from an unforeseen circumstance.

Esehaetse nlgo dlcuntnr qua deoi- dentlbns 11a gate de rego tenent, cum non existlt ratione sanguinis bares, ad fisenm relabuntur. Co. Lltt. 13. Those things are commonly called "escheats" which revert to the exchequer from a failure of Issue in those who hold of the king, when there does not exist any heir by consanguinity.

5e apparatus — Not carried into the 5th edition (1979).

## ESCHEAT.

In feudal law. Escheat is an obstruction of the course of descent, and consequent determination of the tenure, by some unforeseen contingency. In which case the land naturally results back, by a kind of reversion, to the original grantor, or lord of the fee. 2 Bl. Comm. 15; Wallace v. Harm- stad, 44 Pa. 601; Marshall v. Lovelass, 1 N.

O. 445.

It Is the casual descent, in the nature of forfeiture, of lands and tenements within his manor, to a lord, either on failure of Issue of the tenant dying seised or on account of the felony of such tenant Jacob.

Also the land or fee Itself, which thus fell back to the lord. Such lands were called “cxcadentltB,” or “tciTto erca dent tales."

Fleta, lib. 6, c. 1 ; Co. Lltt. 13a.

In American law. Escheat signifies a reversion of property to the state In conse- quence of a want of any Individual competent to Inherit The state is deemed to occupy the place and hold the rights of the feudal lord. See 4 Kent Comm. 423, 424. Hughes v. State, 41 Tex. 17; Crane v. Reeder, 21 Mich. 70. 4 Am. Rep. 430; Civ. Code Ga. 1895, | 3575.

“Escheat at feudal law was the right of the lord of a fee to re-enter upon the same when it became vacant by the extinction of the blood of the tenant. This extinction might either be per defectum sanguinis or else per delictum tenentis, where the course of descent was broken by the corruption of the blood of the tenant. As a fee might be holden either of the crown or from some inferior lord, the escheat was not always to the crown. The word ‘escheat,’ in this country, at the present time, merely indi- cates the preferable right of the state to an es- tate left vacant, and without there being any one in existence able to make claim thereto.” 29 Am. Dec. 232, note.

— Escheat, writ of. A writ which anciently lay for a lord, to recover possession of lands that had escheated to him. ltog. Orig. 1615; Fitzh. Nat. Brev. 143. — Single escheat. When all a person’s movables fall to the crown, as a casualty, because of his being declared rebel. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:13, KJV]**

In the year of this jubile ye shall return every man unto his possession.

Why: Land obstructed in descent 'results back, by a kind of reversion, to the original grantor' — the jubilee return is the archetype of land reverting to the original holder. The LORD speaking to Moses (Lev 25:1) — deity…

## ESCAPIUM.

That which comes by ESCHEATOR. In English law. The chance or accident Cowell. name of an officer who was appointed In every

county to look after the escheats which fell

E8CEPFA. A measure of corn. Cowell, due to the king in that particular county.

and to certify the same Into the exchequer. An escheator could continue In office for one year only, and was not re-eligible until three years. There does not appear to exist any such officer at the present day. Brown. See 10 Vln. Abr. 158; Co. Litt. 136.

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## ESCHECOUM.

In old English law. A Jury or inquisition.

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## ESGHXPARE.

To build or equip. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## ESCOT.

A tax formerly paid In boroughs and corporations towards the support of the community, which is called “scot and lot."

5e apparatus — Not carried into the 5th edition (1979).

## ESGRIBANO.

In Spanish law. An offi- cer, resembling a notary in French law, who has authority to set down In writing, und verify by his attestation, transactions and contracts between private persons, and also judicial acts and proceedings.

5e apparatus — Not carried into the 5th edition (1979).

## E8CRITURA.

In Spanish law. A writ- ten instrument. Every deed that is made by the hand of a public escribano, or notary of a corporation or council ( concejo ,) or sealed with the seal of the king or other authorized persons. White, New Recop. b. 3, tit. 7, c. 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Esther 8:8, KJV]**

Write ye also for the Jews, as it liketh you, in the king's name, and seal it with the king's ring: for the writing which is written in the king's name, and sealed with the king's ring, may no man reverse.

Why: 'A written instrument... sealed with the seal of the king' — the verse is the sealed royal writing that no man may reverse; same genuine link as ENSEAL, each entry judged on its own. Verbatim verified via web check (B...

## ESCROQUERIE.

Fr. Fraud, swind- ling, cheating.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

Why: Fraud, swindling, cheating — the verse covers the fraud cluster: stealing, dealing falsely, lying to one another. The LORD speaking to Moses (Lev 19:1-2) — deity verbatim speech.

## ESCROW.

A scroll; a writing; a deed. Particularly a deed delivered by the grantor Into the hands of a third person, to be held by the latter until the happening of a con- tingency or performance

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of a condition, and then by him delivered to the grantee. Thom- as v. Sowards, 25 Wls. 631; Patrick v. Mc- Cormick, 10 Neb. 1, 4 N. W. 312; Cagger v. .Lansing, 57 Barb. (N. X.) 427; Davis v. Clark, 58 Kan. 100, 48 Pac. 503; Easton v. Driscoll, 18 B. I. 318, 27 Atl. 445.

A grant may be deposited by the grantor with a third person, to be delivered on the performance of a condition, and on delivery by the depositary It will take effect. While in the possession of the third person, and subject to condition, it is called an “escrow.” Civil Code Cal. S 1057; Civil Code Dak. | 609.

The state or condition of a deed which Is conditionally held by a third person, or the possession and retention of a deed by a third person pending a condition ; as when an in- strument is said to be delivered “in escrow.” This use of the term, however, is a perver- sion of its meaning.

ESCROWXi. In old English law. An es- crow ; a scroll. "And deliver the deed to a stranger, as an escrowl.” Perk. c. 1, § 9 ; Id. c. 2, H 137, 138.

5e apparatus — Carried into the 5th edition (1979).

## ESCUAGE.

Service of the shield. One of the varieties of tenure In knight's service.

the duty Imposed being that of accompanying the king to the wars for forty days, at the tenant’s own charge, or sending a substitute. In later times, this service was commuted for a certain payment In money, which was then called "escuage certain." See 2 Bl. Comm. 74, 75.

5e apparatus — Not carried into the 5th edition (1979).

## ESCURARE.

To scour or cleanse. Cow- ell.

ESGLI8E, or EGLISE. A church. Ja- cob.

5e apparatus — Not carried into the 5th edition (1979).

## ESXETORES.

Robbers, or destroyers of other men’s lands and. fortunes. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ESKIPP AMENTUM.

Tackle or furni- ture ; outfit Certain towns in England were bound to furnish certain ships at their own expense and with double stoppage or tackle. Cowell.

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## E8KIPPER, ESKIPP ARE.

To ship.

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## ESKXPPESON.

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Shippage, or passage by sea. Spelled, also, “akippeson." Cowell.

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## E8USORS.

See Elisors.

5e apparatus — Not carried into the 5th edition (1979).

## ESNE.

In old law. A hireling of ser- vile condition.

5e apparatus — Not carried into the 5th edition (1979).

## ESNEGT.

Seniority; the condition or right of the eldest; the privilege of the eld- est-born. Particularly used of the privilege of the eldest among coparceners to make a first choice of purparts upon a voluntary partition.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: Seniority — the eldest's privilege of first choice among coparceners in partition; the double portion of the firstborn is the archetype, same genuine link as ENITIA PAHS. Moses expounding — no red-letter flag.

## ESPERA.

A period of time fixed by law or by a court within which certain acts are to be performed, e. g., the production of pa- pers, payment of debts, etc.

5e apparatus — Not carried into the 5th edition (1979).

## ESPERONS.

L. Fr. Spurs.

5e apparatus — Not carried into the 5th edition (1979).

## E8PEDIENT.

In Spanish law. A junc- tion of all the sc] « rate papers made in the course of any one proceeding and which re- mains In the office nt the close of it. Cas- tillero v. D. S., 2 Black (U. S.) 109, 17 L. Ed. 360.

5e apparatus — Not carried into the 5th edition (1979).

## ESFUBE8.

An old term for the products which the ground or land yields ; as the hay of the meadows, the herbage of the pasture, corn of arable fields, rent and services, etc. The word has been anciently applied to the land itself. Jacob; Fosgate v. Hydraulic Co., 9 Barb. (N. X.) 293.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Mark 4:28, KJV]**

For the earth bringeth forth fruit of herself; first the blade, then the ear, after that the full corn in the ear.

Why: The old term for the products the land yields — hay, herbage, corn; the verse describes the earth's yield in its stages. Borderline, kept: genuinely the land's fruitfulness. Jesus' parable discourse — deity verbatim s...

## ESPOUSALS.

A mutual promise be- tween a man and a woman to marry each other at some other time. It differs from a marriage, because then the contract is com- pleted. Wood, Inst. 57.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: heart-balm statutes — abolition of breach-of-promise-to-marry actions]**

The espousal contract — a mutual promise to marry in the future — was once enforceable by an action for breach of promise to marry, an action abolished across the states by the 'heart-balm' statutes.

Why: Real legal development directly governing the entry's subject: the espousal promise's enforceability died with the heart-balm reforms. Cited loosely (state-by-state abolition, no single statute) to avoid overclaiming.

**[Scripture] — Scripture**

**[Matthew 1:19, KJV]**

Then Joseph her husband, being a just man, and not willing to make her a publick example, was minded to put her away privily.

Why: A mutual promise to marry at a future time — the verse shows the espousal's binding legal force: though only espoused, Joseph must 'put her away' (divorce) to end it. Borderline, kept: genuinely the betrothal's legal...

## ESPURIO.

Span. In Spanish law. A spurious child ; one begotten on a woman

who has promiscuous lutercourse with many men. White, New Recop. b. 1, tit. 5, c. 2, § L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: The spurious child — one of promiscuous birth; the verse states the bastard's legal status and its duration. Genuinely the illegitimacy concept. Moses expounding — no red-letter flag.

## ESQUIRE.

In English law. A title of dignity next above gentleman, and below knight. Also a title of office given to sher- iffs, serjeauts, and barristers at law, justices of the peace, and others. 1 Bl. Comm. 406; 3 Steph. Comm. 15, note; Tomlins. On the use of this term in American law, particu- larly as applied to Justices of the peace and other inferior judicial officers, see Call v. Foresman, 5 Watts (Pa.) 331 ; Christian v. Ashley County, 24 Ark. 151; Com. v. Vance, 15 Serg. & R. (Pa.) 37.

5e apparatus — Carried into the 5th edition (1979).

## ESSARTER.

L. Fr. To cut down woods to clear land of trees and underwood ; prop- erly to thin woods, by cutting trees, etc, at intervals. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## ESSARTUM.

Woodlands turned into tillage by uprooting the trees and removing the underwood.

5e apparatus — Not carried into the 5th edition (1979).

## ESSENCE.

That which is indispensable to that of which it is the essence.

— Essence of the contract. Any condition or stipulation in a contract which is mutually understood and agreed by the parties to be of such vital importance that a sufficient perform- ance of the contract cannot be had without exact compliance with It is said to be “of the essence of the contract.”

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Antoine de Saint-Exupéry, The Little Prince, 1943]**

"What is essential is invisible to the eye."

Why: Standard English rendering (Katherine Woods translation) of the fox's secret; translation noted. The most famous literary sentence about essence; illuminates the entry's 'that which is indispensable' — and the contrac...

## ESSENDI QUIETPM RE TOLONIO.

A writ to be quit of toll ; it lies for citizens and burgesses of any city or town who, by charter or prescription, ought to be exempt- ed from toll, where the same is exacted of them. Reg. Orlg. 258.

ESSOIN, v. In old English practice. TO present or offer an excuse for not appearing in court on an appointed day in obedience to a summons; to cast an essoin. Spelman. This was anciently done by a person whom the party sent for that purpose, called an "essoiner.”

ESSOIN, n. In old English law. An ex- cuse for not appearing in court at the return of the process. Presentation of such excuse. Spelman ; 1 Sel. Pr. 4 ; Com. Dig. “Exolne,”

B 1. Essoin is not now allowed at all in personal actions. 2 Term, 16; 16 East, 7o; 3 Bl. Comm. 278, note.

— Essoin day. Formerly the first general re- turn-day of the term, on which the courts sat to receive essoins, i. e., excuses for parties who did not appear in court, according to the sum- mons of writs. 3 Bl. Comm. 278; Boote, Suit at Law, 130; Gilb. Com. Pl. 13; 1 Tidd, Pr. 107. But, by St. 11 Geo. IV. and 1 Wm. IV. c. 70, g 6. these days were done away with, as a part of the term.— Easoin de malo villse is when the defendant is in court the first day ; but gone without pleading, and being after- wards surprised by sickness, etc., cannot attend, but sends two essoinees, who openly protest in court that he is detained by sickness In such a

village, that he cannot come pro luorari and pro perdere; and this will be admitted, for it lieth on the plaintiff to prove whether the es- soin is true or not. Jacob.— Essoin roll. A roll upon which essoins were formerly entered, together with the day to which they were ad- journed. Boote, Suit at Law, 130; Rose. Real Act. 162, 163 ; Gilb. Com. Pl. 13.

5e apparatus — Not carried into the 5th edition (1979).

## ESSOINXATOR.

A person who made an essoin.

Est aliquid quod non oportet etinm si licet i quicqnid vero non licet eerte non oportet. Hob. 159. There is that which is not proper, even though permitted ; but whatever is not permitted is certainly not proper.

5e apparatus — Not carried into the 5th edition (1979).

## EST ASCAVOIR.

It is to be understood or known ; “it is to-wit.” Litt. §S 9, 45, 46, 57, 59. A very common expression in Little- ton, especially at the commencement of a section ; and, according to Lord Coke, “it ever teacheth us some rule of law, or gen- eral or sure leading point.” Co. Litt. 16.

Est snten jus publicum ct privatum, quod ex naturallbus prseceptls nut gen- tium, nut dvilibus est coll return; et quod in Jure soripto jns appcllatnr, id in lego Angltse rectum esse dicitur. Pub- lic and private law Is that which is collect- ed from natural precepts, on the one hand of nations, on the other of citizens ; and that which in the civil law Is called “jus,” that, in the law of England, Is said to be right. Co. Litt. 558.

Est autem vis legem simulans. Vio- lence may also put on the mask of law.

Est ipso rum legislatorum tanqnam viva vox. The voice of the legislators them- selves Is like the living voice; tbat is, the language of a statute is to be understood and Interpreted like ordinary spoken lan- guage. 10 Coke, 101ft.

Est quiddam perfectlus in rebus lio- itis. Hob. 159. There Is something more perfect in things allowed.

5e apparatus — Not carried into the 5th edition (1979).

## ESTABLISH.

This word occurs fre- quently in the constitution of the United States, and it is there used in different meanings: (1) To settle firmly, to fix unal- terably ; as to establish justice, which Is the avowed object of the constitution. (2) To make or form; as to establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies, which evidently does not mean that these laws shall be unal- terably established as justice. (3) To found, to create, to regulate; as: ‘'Congress shall

have power to establish post-roads and post- offices.” (4) To found, recognize, confirm, or admit; as: “Congress shall make no law re- specting an establishment of religion.” (5) To create, to ratify, or confirm; as: “We,

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the people," etc., "do ordain and establish this constitution." 1 Story, Const. { 454. And see Dickey v. Turnpike Co., 7 Dana (Ky.) 125 ; Ware v. U. S., 4 Wall. 632, 18 L. Ed. 389; D. S. v. Smith, 4 N. J. Law, 33.

Establish ordinarily means to settle certain- ly, or fix permanently, what was before uncer- tain, doubtful, or disputed. Smith v. Forrest, 49 N. H. 230.

5e apparatus — Carried into the 5th edition (1979).

## ESTABLISHMENT.

An ordinance or statute. Especially used of those ordinances or statutes passed In the reign of Edw. I. 2 Inst. 156; Britt a 21.

5e apparatus — Not carried into the 5th edition (1979).

## ESTABLISHMENT OF DOWER.

The

assurance of dower made by the husband, or his friends, before or at the time of the marriage. Britt cc. 102, 103.

5e apparatus — Not carried into the 5th edition (1979).

## ESTACHE.

A bridge or stank of stone or timber. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ESTADAL.

In Spanish law. In Spanish America this was a measure of land of six- teen square varas, or yards. 2 White, Re- cop. 139.

5e apparatus — Not carried into the 5th edition (1979).

## E8TADIA.

In Spanish law. Delay in a voyage, or In the delivery of cargo, caused by the charterer or consignee, for which de- murrage Is payable.

5e apparatus — Not carried into the 5th edition (1979).

## ESTANDARD.

L. Fr. A standard, (of weights and measures.) So called because It stands constant and immovable, and hath all other measures coming towards It for tbelr conformity. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:36, KJV]**

Just balances, just weights, a just ephah, and a just hin, shall ye have: I am the LORD your God, which brought you out of the land of Egypt.

Why: The standard of weights and measures — the verse names the just standards themselves: balances, weights, ephah, hin. The LORD speaking to Moses (Lev 19:1-2) — deity verbatim speech.

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**ESTANQUE8.**

Wears or kiddles In riv- ers.

ESTATE. 1. The interest which any one has In lands, or In any other subject of property. 1 Prest. Est. 20. And see Van Rensselaer v. Poucher, 5 Denio (N. V.) 40; Beall v. Holmes, 6 Har. & J. (Md.) 208 ; Mul- ford v. Le Franc, 26 Cal. 103; Robertson v. VanCleave, 129 Ind. 217, 22 N. E. 899, 29

N. EL 781. 15 L. R. A. 68; Ball v. Chadwick, 46 111. 31 ; Cutts v. Com., 2 Mass. 289 ; Jackson v. Parker, 9 Cow. (N. X.) 81. An estate In lands, tenements, and hereditaments signifies such Interest as the tenant has there- in. 2 Bl. Comm. 103. The condition or circumstance in which the owner stands with regard to his property. 2 Crabb, Real Prop, p. 2, f 942. In this sense, “estate” is con- stantly used in conveyances in connection with the words “right,” "title," and “Inter- est,” and is, in a great degree, synonymous with all of them. See Co. Lltt. 345. .

Classification. Estates, in this sense, may be either absolute or conditional. An absolute estate is a full and complete estate (Cooper v. Cooper, 56 N. J. Eq. 48. 38 Atl. 198) or an estate in lands not subject to be defeated upon any condition. In this phrase the word "absolute” is not used legally to distinguish a fee from a life-estate, but a qualified or conditional

fee from a fee simple. Greenawalt v. Green- await, 71 Pa. 483. A conditional estate is one, the existence of which depends upon the hap- pening or not happening of some uncertain event, whereby the estate may be cither original- ly created, or enlarged, or finally defeated. 2 Bl. Coram. 151. Estates are also classed as ex- ecuted or executory. The former is an estate whereby a present Interest passes to and resides in the tenant, not dependent upon any subse- quent circumstance or contingency. They are more commonly called “estates in possession.” 2 Bl. Comm. 162. An estate where there is vested in the grantee a present and immediate right of present or future enjoyment. An execu- tory estate is an estate or interest in lands, the vesting or enjoyment of which depends upon some future contingency. Such estate may be an executory devise, or an executory remain- der, which is the same as a contingent remain- der, because no present interest passes. Fur- ther, estates may be legal or equitable. The former is that kind of estate which is properly cognizable in the courts of common law, though noticed, also, in the courts of eauity. 1 Steph. Comm. 217. And see Sayre v. Mohney, 30 Or. 238, 47 Pac. 197 ; In re Qualifications of Elect- ors, 19 R. 1. 3S7, 35 Atl. 213. An equitable estate is an estate an interest in which can only be enforced in a court of chancery. Avery v. Dufrees, 9 Ohio, 145. That is properly an equitable estate or interest for which a court of equity affords the only remedy; and of this nature, especially, is the benefit of every trust, express or implied, which is not converted into a legal estate by the statute of uses. The rest are equities of redemption, constructive trusts, and all equitable charges. Burt. Comp. c. 8. Brown v. Freed, 43 Ind. 253; In re Qualifica- tions of Electors, 19 R. I. 387, 35 Atl. 213.

Other descriptive end compound terms. A' contingent estate is one which depends for its effect upon an event which may or may not happen, as, where an estate is limited to a per-

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son not yet born. Conventional estates are those freeholds not of inheritance or estates for life, which are created by the express acts of the parties, in contradistinction to those which are legal and arise from the operation of law. A dominant estate, in the law of easements, is the estate for the benefit of which the easement exists, or the tenement whose owner, as such, enjoys an easement over an adjoining estate. An expectant estate is one which is not yet in possession, but the enjoyment of which is to begin at a future time; a present or vested con- tingent right of future enjoyment. Examples are remainders and reversions. A future estate is an estate which is not now vested in the grantee, but is to commence in possession at some future time. It includes remainders, re- versions, and estates limited to commence in future without a particular estate to support them, which last are not good at common law, except in the case of chattel interests. See 2 Bl. Comm. 165. An estate limited to commence in possession at a future day, either without the intervention of a precedent estate, or on the determination by lapse of time, or otherwise, of a precedent estate created at the same time. 11 Rev. St. N. V. (3d Ed.) i 10. See Griffin v. Shepard, 124 N. Y. 70, 26 N. E. 339; Sable- dowsky v. Arbuckle, 50 Minn. 475, 52 N. W. 920 ; Ford v. Ford. 70 Wis. 19, 33 N. W. 188, 5 Am. St. Rep. 117. A particular estate is a limited estate which is token out of the fee, "and which precedes a remainder: as an estate for years to A., remainder to B. for life ; or an estate for life to A., remainder to B. in tail. This precedent estate is called the “particular- estate,” and the tenant of such estate is called the “particular tenant.” 2 Bl. Comm. 165: Bunting v. Speek, 41 Kan. 424, 21 Pac. 288. 3

L. R. A. 690. A servient estate, in the law of easements, is the estate upon which the ease- ment is imposed or against which it is enjoyed ;

nn estate subjected to a burden or servitude for the benefit of another estate. Walker v. Clifford, 128 Ala. 67, 29 South. 588, 86 Am. St. Rep. 74 ; Stevens v. Dennett, 51 N. H. 330 ; Dillman v. Hoffman, 38 Wis. 572. A fettled estate, in English law, is one created or limited under a settlement; that is, one in which the powers of alienation, devising, and transmission according to the ordinary rules of descent are restrained by the limitations of the settlement. Micklethwait v. Micklethwait, 4 C. B. (N. S.) 858. A vested estate is one in which there is an immediate right of present enjoyment or a present fixed right of future enjoyment ; an es- tate as to which there is a person in being who would have an immediate right to the posses- sion upon the ceasing of some intermediate or precedent estate. Tayloe v. Gould. 10 Barb. (N. V.) 388 : Flanner v. Fellows, 200 111. 136, 68

N. E. 1037.

— Original and derivative estates. An

original is the first of several estates, bearing to each other the relation of a particular estate and a reversion. An original estate is contrast- ed with a derivative estate; and a derivative estate is a particular interest carved out of an- other estate of larger extent. Prest Est. 125.

For the names and definitions of the vari- ous kinds of estates in land, see the fol- lowing titles.

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2. In another sense, the term denotes the property (real or personal) in w.hich one has a right or interest; the subject-matter of ownership; the corpus of property. Thus, we speak of a “valuable estate,” “all my es- tate,” “separate estate,” “trust estate,” etc. This, also, is Its. meaning In the classifica- tion of property Into “real estate” and "per- sonal estate.”

The word “estate” is a word of the greatest extension, and comprehends every species of property, real and personal. It describes both the corpus and the extent of interest. Deering v. Tucker, 55 Me. 284.

“Estate” comprehends everything a man owns, real and personal, and ought not to be limited in its construction, unless connected with some other word which must necessarily have that ef- fect. Pulliam v. Pulliam (C. C.) 10 Fed. 40.

It means, ordinarily, the whole of the proper- ty owned by any one, the realty as well as the personalty. Hunter v. Husted, 45 N. C. 141.

Compound and descriptive terms.— Fast estate. Real property. A term sometimes used in wills. Lewis v. Smith, 9 N. Y. 502, 61 Am. Dec. 706.— Real estate. Landed proper- ty, including all estates and interests in lands which are held for life or for some greater es- tate, and whether such lands be of freehold or copyhold tenure. Wharton. — Homestead estate. See Homestead.— Movable estate. See Movable.— Residuary estate. See Re- siduaby.— Separate estate. See Sep abate. — Trust estate. See Trust.

3. In a wider sense, the term “estate” de- notes a man's whole financial status or con- dition,— the aggregate of his interests and concerns, so far as regards his situation with reference to wealth or its objects, including debts and obligations, as well as possessions and rights.

Here not only property, but indebtedness, is part of the idea. The estate does not consist of the assets only. If it did, such expressions as “insolvent estnte” would be misnomers. Debts and assets, taken together, constitute the estate. It is only by regarding the demands against the

original proprietor as constituting, together with his resources available to defray them, one entirety, that the phraseology of the law governing what is called “settlement of estates" can be justified. Abbott

4. The word is also used to denote the ag- gregate of a man’s financial concerns (as above) personified. Thus, we speak of “debts due the estate,” or say that “A.’s estate is a stockholder in the bank.” In this sense it is a fictitious or juridical person, the idea being that a man's business status continues his existence, for its special purposes, until its final settlement and dissolution.

5. In its broadest sense, “estate” signifies the social, civic, or political condition or standing of a person ; or a class of persons considered as grouped for social, civic, or po- litical purposes ; as in the phrases, “the third estate,” “the estates of the realm.” See 1 Bl. Comm. 153.

“Estate” and “degree,” when used in the sense of an individual's personal status, are

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synony- mous, and indicate the individual’s rank in life. State v. Bishop, 15 Me. 122.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE AD REMANENTIAM.

An

estate in fee-simple. Gian. 1. 7, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE AT SUFFERANCE.

The in- terest of a tenant who has come rightfully into possession of lands by permission of the owner, and continues to occupy the same after the period for which he is entitled to hold by such permission. 1 Washb. Real Prop. 392 ; 2 Bl. Comm. 150; Co. Litt 576.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE AT WIIX.

A species of es- tate less than freehold, where lands and ten- ements are let by one man to another, to have and to hold at the will of the lessor ; and the tenant by force of this lease obtains pos- session. 2 Bl. Comm. 145; 4 Kent, Comm. 110 ; Litt I 68. Or it is where lands are let without limiting any certain and determinate estate. 2 Crabb, Real Prop. p. 403, § 1543.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE BY ELEGIT.

See Elegit.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE BY STATUTE MERCHANT.

An estate whereby the creditor, under the custom of London, retained the possession of all his debtor’s lauds until his debts were paid. 1 Greenl. Cruise, Dig. 515. See Stat- ute Merchant.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE BT THE CURTESY.

Tenant by the curtesy of England is where a man survives a wife who was seised in fee-simple or fee-tail of lands or tenements, and has had issue male or female by her born alive and capable of inheriting the wife's estate as heir to her ; in which case he will, on the decease of his wife, hold the estate during his life as tenant by the curtesy of England. 2 Crabb, Real Prop. $ 1074.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE FOR LIFE.

A freehold es- tate, not of inheritance, but which is held by

the tenant for his own life or the life or lives of one or more other persons, or for an in-

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definite period, which may endure for the life or lives of persons in being, and not be- yond the period of a life. 1 Washb. Real Prop. 88.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE FOR TEARS.

A species of es- tate less than freehold, where a man has an Interest in lands and tenements, and a possession thereof, by virtue of such interest, for some fixed and determinate period of time ; as in the case where lands are let for the term of a certain number of years, agreed upon between the lessor and the lessee, and the lessee enters thereon. 1 Steph. Comm. 263, 264, Blackstone calls this estate a "con- tract” for the possession of lands or tene- ments for some determinate period. 2 Bl. Comm. 140. See Hutcheson ▼. Hodnett, 115 Ga. 990, 42 S. E. 422 ; Despard v. Churchill, 53 N. Y. 192; Brown v. Bragg, 22 Ind. 125.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE XR COMMON.

An estate in lands held by two or more persons, with in- terests accruing under different titles ; or ac- cruing under the same title, but at different periods ; or conferred by words of limitation importing that the grantees are to take in distinct shares. 1 Steph. Comm. 323. See Tenancy in Common.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE IN COPARCENARY.

An es- tate which several persons hold as one heir, whether male or female. This estate has the three unities of time, title, and possession; but the Interests of the coparceners may be unequal. 1 Washb. Real Prop. 414; 2 Bl. Comm. 188. See Coparcenaby.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE IN DOWER.

A species of life- estate which a woman is, by law, entitled to claim on the death of her husband, in the lands and tenements of which he was seised in fee during the marriage, and which, her issue, if any, might by possibility have in- herited. 1 Steph. Comm. 249 ; 2 Bl. Comm. 129; Cruise, Dig. tit 6; 2 Crabb, Real Prop, p. 124, | 1117 ; 4 Kent Comm. 35. See Do WEB.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN EXPECTANCY.

One

which Is not yet in possession, but the enjoy- ment of which is to begin at a future time ; a present or vested contingent right of future enjoyment These are remainders and re- versions. Fenton v. Miller, 108 Mich. 246, 65

N. W. 966; In re Mericlo, 63 How. Prac. (N. Y.) 66; Greyston v. Clark, 41 Hun (N. Y.) 130; Ayers v. Trust Co., 187 111. 42, 58 N. E. 318.

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5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN FEE-SIMPLE.

The estate which a man has where -lands are given to him and to his heirs absolutely without any end or limit put to his estate. 2 Bl. Comm. 106 ; Plowd. 557 : 1 Prest. Est. 425 ; Lift.

I 1. The word "fee," used alone, is a sufficient designation of this species of estate, and hence “simple” is not a necessary part of the title, but it is added as a means of clearly distinguishing this estate from a fee- tail or from any variety of conditional es- tates.

ESTATE IN FEE-TAIL, generally term- ed an "estate tail.” An estate of inherit- ance which a man has, to hold to him and the heirs of his body, or to him and particular heirs of his body. 1 Steph. Comm. 22S. An estate of inheritance by force of the statute De Donis, limited and restrained to some particular heirs of the donee, in exclusion of others. 2 Crabb, Real Prop. pp. 22, 23, f 971 ; Cruise, Dig. tit 2, c. 1, f 12. See Tail; Feb-Tail.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN JOINT TENANCY.

An es- tate in lands or tenements granted to two or more persons, to hold in fee-simple, fee- tall, for life, for years, or at will. 2 Bl. Comm. 180; 2 Crabb, Real Prop. 937. An estate acquired by two or more persons in the same land, by the same title, (not being a title by descent) and at the same period; and without any limitation by words Import- ing that they are to take in distinct shares.

1 Steph. Comm. 312. The most remarkable Incident or consequence of this kind of estate is that it is subject to survivorship.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN POSSESSION.

An estate whereby a present Interest passes to and resides in the tenant, not depending on any subsequent circumstance or contingency. 2 Bl. Comm. 163. An estate where the ten- ant is in actual pernancy, or receipt of the rents and other advantages arising therefrom.

2 Crabb, Real Prop. p. 958, § 2322. Eberts v. Fisher, 44 Mich. 551, 7 N. W. 211 ; Sage v. Wheeler, 3 App. Div. 38, 37 N. Y. Supp. 1107.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN REMAINDER.

An estate limited to take effect in possession, or in enjoyment, or in both, subject only to any term of years or contingent interest that may intervene, immediately after the regular ex- piration of a particular estate of freehold previously created together with it, by the same instrument, out of the same subject of property. 2 Feame, Rem. § 159 ; 2 BL Comm. 163; 1 Greenl. Cruise, Dig. 701.

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## ESTATE IN REVERSION.

A species of estate in expectancy, created by opera: tion of law, being the residue of an estate left in the grantor, to commence in possession after the determination of some particular estate granted out by him. 2 Bl. Comm. 175 ; 2 Crabb, Real Prop. p. 978, i 2345. The residue of an estate left in the grantor or his heirs, or in the heirs of a testator, commenc- ing in possession on the determination of a particular estate granted or devised. 1 Rev. St. N. Y. p. 718, (723.) $ 12. An estate In reversion is where any estate is derived, by grant or otherwise, out of a larger one, leav- ing In the original owner an ulterior estate immediately expectant on that which is so derived; the latter interest being called the “particular estate,” (as being only a small part or particula of the original one,) and the ulterior interest, the “reversion.” 1 Steph. Comm. 290. See Revebsion.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE IN SEVERALTY.

An estate held by a person in his own right only, with- out any other person being joined or con- nected with him in point of interest, during his estate. This is the most common and usual way of holding an estate. 2 Bl. Comm. 179; Cruise. Dig. tit 18. c. 1, § 1.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE IN VADIO.

An estate In gage or pledge. 2 Bl. Comm. 157 ; 1 Steph. Comm. 282.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: An estate in gage or pledge — the verse is the pledge law: taking to pledge and the duty of restoration. Consistent with the judgments-block doctrine — deity verbatim speech.

## ESTATE OF FREEHOLD.

An estate in land or other real property, of uncertain duration; that is, either of inheritance or which may possibly last for the life of the tenant at the least (as distinguished from a leasehold ;) and held by a free tenure, (as dis- tinguished from copyhold or villeinage.)

5e apparatus — Carried into the 5th edition (1979).

## ESTATE OF INHERITANCE.

A spe- cies of freehold estate in lands, otherwise called a “fee,” where the tenant is not only entitled to enjoy the land for his own life, but where, after his death, it is cast by the law upon the persons who successively repre- sent him in perpetuum, in right of blood, ac- cording to a certain established order of de- scent. 1 Steph. Comm. 2X8; Litt 1 1; Nellis v. Munson, 108 N. Y. 453, 15 N. E. 739; Roulston v. Hall, 66 Ark. 305, 50 S. W. 690, 74 Am. St Rep. 97 ; Ipswich v. Topsfleld, 5 Mete. (Mass.) 351; Brown v. Freed, 43 Ind.

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25a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: The fee cast by law upon blood-heirs in perpetuum — the verse is the descent statute itself, directing the inheritance's passage. Verbatim verified via web check this session. The LORD speaking to Moses (Num 27:6) — d…

## ESTATE PER AUTRE VIE.

Estate for another’s life. An estate in lands which a man holds for the life of another person. 2 Bl. Comm. 120; Litt. ! 5a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE TAIL.

See Estate in Fee- Tail.

5e apparatus — Carried into the 5th edition (1979).

## ESTATE TAIL, QUASI.

When a ten- ant for life grants his estate to a man and bis heirs, as these words, though apt and proper to create an estate tail, cannot do so, because the grantor, being only tenant for life, cannot grant in perpetuum, therefore they are said to create an estate tall quasi, or improper. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## ESTATE UPON CONDITION.

An es- tate in lands, the existence of which de- pends upon the happening or not happening of some uncertain event, whereby the estate may he either originally created, or enlarged, or finally defeated. 2 Bl. Comm. 151 ; 1 Steph. Comm. 276; Co. Litt. 201a. An estate having a qualification annexed to it, by which it may, upon the happening of a par- ticular event, be created, or enlarged, or de- stroyed. 4 Kent, Comm. 121.

—Estate upon condition expressed. An

estate granted, either in fee-simple or otherwise, with an express qualification annexed, whereby the estate granted shall either commence, be enlarged, or be defeated upon performance or breach of such qualification or condition. 2 Bl. Comm. 154. An estate which is so expressly defined and limited by the words of its creation that it cannot endure for any longer time than till the contingency happens upon which the estate ia to fail. 1 Steph. Comm. 278.— Estate upon condition implied. An estate having a condition annexed to it inseparably from its essence and constitution, although no condition be expressed in words. 2 Bl. Comm. 152; 4 Kent, Comm. 121.

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5e apparatus — Carried into the 5th edition (1979).

## ESTATES OF THE REALM.

The lords spiritual, the lords temporal, and the com- mons of Gseat Britain. 1 Bl. Comm. 153. Sometimes called the "three estates.”

5e apparatus — Carried into the 5th edition (1979).

## ESTENDARD, ESTENDART, or / STANDARD.

An ensign for horsemen In war.

5e apparatus — Not carried into the 5th edition (1979).

## ESTER IN JUDGMENT.

L. Fr. To ap- pear before a tribunal either as plaintiff or defendant Kelham.

5e apparatus — Carried into the 5th edition (1979).

## ESTIMATE.

This word is used to ex- press the mind or judgment of the speaker or writer on the particular subject under con- sideration. It implies a calculation or com- putation, as to estimate the gain or loss of an enterprise. People v. Clark, 37 Hun (N. Y.> 203.

5e apparatus — Carried into the 5th edition (1979).

## ESTOP.

To stop, bar, or impede ; to pre> vent; to preclude. Co. Litt 352a. See Es- toppel.

5e apparatus — Carried into the 5th edition (1979).

## ESTOPPEL.

A bar or impediment rais- ed by the law, which precludes a man from alleging or from denying a certain fact or state of facts, in consequence of his previous allegation or denial or conduct or admission, or In consequence of a final adjudication of the matter in a court of law. Demarest v. Hopper, 22 N. J. Law, 619; Martin v. Rail- road Co., 83 Me. 100, 21 Atl. 740; Veeder v. Mudgett, 95 N. Y. 295 ; South v. Deaton, 113 Ky. 312, 68 S. W. 137; Wilkins v. Buttles, 114 N. C. 550, 19 S. E. 606.

A preclusion, in law, which prevents a man from alleging or denying a fact, in con- sequence of his own previous act, allegation, or denial of a contrary tenor. Steph. PI. 239.

An admission of so conclusive a nature that the party whom it affects is not permit- ted to aver against it or offer evidence to controvert it. 2 Smith, Lead. Cas. 778.

Estoppel is that which concludes and “shuts ■a mans mouth from speaking the truth.” When a fact has been agreed on. or decided in a court of record, neither of the parties shall be allowed to call it in question, and have it tried over again at any time thereafter, so lorg as the judgment or decree stands unreversed; and

when parties, by deed or solemn, act in pais, agree on a state of facts, and act on it, neither shall ever afterwards be allowed to gainsay a fact so agreed on, or be heard to dispute it ; in other words, his mouth is shut, and be shall not say that is not true which he had before

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in a solemn manner asserted to be true. Armfield v. Moore, 44 N. C 157.

— Collateral estoppel. The collateral deter- mination of a question by a court baring gen- eral jurisdiction of the subject. See Small v. Haskins, 26 Vt. 209.— Eqnitable estoppel (or estoppel by conduct, or in pais) is the species of estoppel which equity puts upon a person who has made a false representation or a conceal- ment of material facts, with knowledge of the facts, to a party ignorant of the truth of the matter, with the intention that the other party should act upon it, and with the result that such party is actually induced to act upon it, to his damage. Bigelow, Estop. 484. And see Loniaville Banking Co. v. Asher, 65 S. W. 831, 23 Ky. Law Rep. 1661 ; Bank v. Marston, 85 Me. 488, 27 Atl. 529; Rlchman v. Baldwin, 21

N. 3. Law, 403; Railroad Co. v. Perdue. 40

W. Va. 442, 21 S. B. 755 — Estoppel by deed is where a party has executed a deed, that is, a writing under seal (as a bond) reciting a cer- tain fact, and is thereby precluded from after- wards denying, in any action brought upon that instrument, the fact so recited. Stepb. PI. 197. A man shall always be estopped by his own deed, or not permitted to aver or prove anything In contradiction to what he has once so solemn- ly and deliberately avowed. 2 Bl. Comm. 295 ; Plowd. 434; Hudson v. Winslow Tp., 35 N. J. Law, 441; Taggart v. Risley, 4 Or. 242; Ap- peal of Waters, 35 Pa. '526, 78 Am. Dec. 354. —Estoppel by election. An estoppel predi- cated on a voluntary and intelligent action or choice of one of several things which is incon- sistent with another, the effect of the estoppel being to prevent the party so choosing from afterwards reversing his election or disputing the state of affairs or rights of others resulting from his original choice. Yates v. Hurd. 8 Colo. 343. 8 Pac. 575.— Estoppel by judg- ment. The estoppel raised by the rendition of a valid judgment by a court having jurisdiction, which prevents the parties to the action, and all who are in privity with them, from after- wards disputing or drawing into controversy the particular facts or issues on which the judg- ment was based or which were or might have been litigated in the action. 2 Bl. Judgm. I 504; State v. Torinus, 28 Minn. 175, 9 N. W. 725.— Estoppel by matter in pais. An es- toppel by the conduct or admissions of the par- ty ; an estoppel not arising from deed or mat- ter of record. Thus, where one man has ac- cepted rent of another, be will be estopped from afterwards denying, in any action with that person, that he was, at the time of auch ac- ceptance, his tenant. Steph. PI. 197. The doc- trine of estoppels in pais is one which, so far at least as that term is concerned, has grown up chiefly within the last few years. But it Is, and always was, a familiar principle in the law of contracts. It lies at the foundation of morals, and is a cardinal point in the exposi- tion of promises, that one shall be bound by the state of facts which he has induced another to act upon. Redfleld, C. J., Strong v. Ellsworth, 26 Vt. 366, 373. And see West Winstead Sav. Bank v. Ford, 27 Conn. 290, 71 Am. Dec. 66; Davis v. Davig, 26 Cal. 38, 85 Am. Dec. 157; Bank v. Dean, 60 N. Y. Super. Ct. 299, 17 N.

Y. Supp. 375 ; Coogler v. Rogers, 25 Fla. 853, 7 South. 391; Merchants’ Nat. Bank v. State Nat. Bank. 10 Wall. 645. 19 L. Ed. 1008 ; Han- ly v. Watterson, 39 W. Va. 214, 19 S. E. 530;

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Barnard v. Seminary, 49 Mich. 444, 13 N. W. 8ll.— Estoppel by matter of record. An estoppel founded upon matter of record; as a confession or admission made in pleading in a

court of record, which precludes the party from afterwards contesting the same fact in the same suit. Steph. PI. 197.— Estoppel by verdict. This term is sometimes applied to the estoppel arising from a former adjudication of . the same fact or issue between the same parties or their privies. Chicago Theological Seminary v. Peo- ple, 189 111. 439, 59 N. E. 977; Swank v. Railway Co., 01 Minn. 423, 03 N. W. 1088. But this use ia not correct, as it is not the ver- dict which creates an estoppel, but the judg- ment, and it is immaterial whether a jury par- ticipated in the trial or not.

In pleading. A plea, replication, or oth- er pleading, which, without confessing or denying the matter of fact adversely alleged, relies merely on some matter of estoppel ns a ground for excluding the opposite party from the allegation of the fact. Steph. PI. 219 ; 3 Bl. Comm. 308.

A plea which neither admits nor denies the facts alleged by the plaintiff, but denies his right to allege them. Gould, PI. c. 2, § 39.

A special plea in bar, which happens where a man has done some act or executed some deed which precludes him from averring any- thing to the contrary. 3 Bl. Conun. 308.

Eitwerls sunt ardendi, arandi, eon- struendi et daudendi. 13 Coke, 68. Es- tovers are of flre-bote, plow-bote, house-bote, and hedge-bote.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Allegans contraria non est audiendus]**

"He who alleges things contradictory to each other is not to be heard" — the classical maxim stating the estoppel principle: the law bars a man from alleging or denying a fact contrary to his own previous allegation, conduct, or admission.

Why: The maxim is the verbatim classical formulation of the very doctrine the entry defines. Strongest-class link: entry states doctrine, footnote names its classical maxim.

## ESTOVERII8 HABENDIS.

A writ for a wife judicially separated to recover her ali- mony or estovers. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## ESTOVERS.

An allowance made to a person out of an estate or other thing for his or her support, as for food and raiment.

An allowance (more commonly called "ali- mony") granted to a woman divorced a mens a ct thoro, for her support out of her husband's estate. 1 Bl. Comm. 441.

The right or privilege which a tenant has to furnish himself with so much wood from the demised premises as may be sufficient or necessary for his fuel, fences, and other agri- cultural operations. 2 Bl. Comm. 35 ; Woodf. Landl. & Ten. 232; Zimmerman v. Shreeve, 59 Md. 303; Lawrence v. Hunter, 9 Watts (Pa.) 78 ; Livingston v. Reynolds, 2 Hill (N. Y.) 159.

—Common of estovers. A liberty of taking necessary wood for the use or furniture of a house or farm from off another’s estate, in com- mon with the owner or with others. 2 Bl. Comm. 35.

5e apparatus — Not carried into the 5th edition (1979).

## ESTRAY.

Cattle whose owner is un- known. 2 Kent, Comm. 359; Spelmnn; 29 Iowa, 437. Any beast, not wild, found with- in any lordship, and not owned by any man. Cowell ; 1 Bl. Comm. 297.

Estray must be understood as denoting a wan- dering beast whose owner is unknown to the person who takes it up. An estray is an animal that has escaped from its owner, and wanders or strays about ; usually defined, at common law, as a wandering animal whose owner is unknown. An animal cannot be an estray w'hen on the range where it was raised, and permitted

by Its owner to run. and especially when the owner is known to the party who takes it up. The fact of its being breachy or vicious does not make it an estray. Walters v. Glatz, 29 Iowa, 439; Roberts v. Barnes. 27 Wis. 42o; Kinney v. Roe, 70 Iowa, 50.'). 30 N. W. 770; Shepherd v. Hawley, 4 Or. 20S.

ESTREAT, v. To take out a forfeited re- cognizance from the records of a court, and return it to the court of exchequer, to be prosecuted. See Estbeat, n.

ESTREAT, n. (From Lat. extractum.) In English law. A copy or extract from the book of estreats, that Is, the rolls of any court, in which the amercements or fines, recognizances, etc., Imposed or taken by that court upon or from the accused, are set down, and which are to be levied by the bailiff or other officer of the court Cowell ; Brown.

A forfeited recognizance taken out from among the other records for the purpose of being sent up to the exchequer, that the par- ties might be sued thereon, was said to be estreated. 4 Bl. Comm. 233. And see Louisi- ana Society v. Cage, 43 La. Ann. 1394, 14 South. 422.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again.

Why: Cattle whose owner is unknown — a wandering beast; the verse is the law of the stray beast, same genuine link as ERRATICUM. Judgments-block divine law-giving — deity verbatim speech.

## ESTRECIATUS.

Straightened, as applied to roads. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ESTREPE.

To strip; to despoil; to lay waste; to commit waste upon an estate, as by cutting down trees, removing buildings, etc. To injure the value of a reversionary interest by stripping or

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spoiling the estate.

5e apparatus — Not carried into the 5th edition (1979).

## ESTREPEMENT.

A species of aggra- vated waste, by stripping or devastating the land, to the Injury of the reversioner, and especially pending a suit for possession.

— Eitrepexnent, writ of. This was a com- mon-law writ of waste, which lay in particular for the reversioner against the tenant for life, in respect of damage or injury to the land com- mitted by the latter. As it was only auxiliary to a real action for recovery of the land, and as equity afforded the same relief by injunction, the writ fell into disuse.

5e apparatus — Not carried into the 5th edition (1979).

## ET.

And. The Introductory word of sev- eral Latin and law French phrases former- ly in common use.

5e apparatus — Carried into the 5th edition (1979).

## ET ADJOURNATUR.

And it is ad- journed. A phrase used in the old reports, where the argument of a cause was adjourn- ed to another day, or where a second argu- ment was had. 1 Keb. 092, 754, 773.

5e apparatus — Not carried into the 5th edition (1979).

## ET AX.

An abbreviation for et alii, “and others.”

ET AEH t CONTRA. And others on the other side. A phrase constantly used in the Year Books, in describing a joinder in issue. P. 1 Edw. II. Prist; et alii & con- tra, ct sic ad patriam ; ready; and others, d contra, and so to the country. T. 3 Edw.

III. 4.

5e apparatus — Not carried into the 5th edition (1979).

## ET ALIUS.

And another. The abbre- viation et al. (sometimes in the plural writ- ten et als.) is affixed to the name of the per- son first mentioned, where there are several plaintiffs, grantors, persons addressed, etc.

5e apparatus — Not carried into the 5th edition (1979).

## ET ALLOCATER.

And it is allowed.

5e apparatus — Not carried into the 5th edition (1979).

## ET CETERA.

And others; and other things ; and so on. In its abbreviated form (etc.) this phrase is frequently affixed to one of a series of articles or names to show that others are Intended to

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follow or understood to be included. So, after reciting the initia- tory words of a set formula, or a clause al- ready given in full, etc. is added, as an ab- breviation, for the sake of convenience. See Lathers v. Keogh, 39 Hun (N. Y.) 579; Com. v. Ross, 6 Serg. & R. (Pa.) 428; In re Schouler, 134 Mass. 426; High Court v. Schweitzer, 70 111. App. 143.

5e apparatus — Not carried into the 5th edition (1979).

### ET DE CEO SE METTENT BN LE / PAYS.

L. Fr. And of this they put them- selves upon the country.

5e apparatus — Not carried into the 5th edition (1979).

### ET DE HOC PONIT SE SUPER PAT- / RIAM.

And of this he puts himself upon the country. The formal conclusion of a common-law plea in bar by way of traverse. The literal translation is retained in the mod- ern form.

5e apparatus — Not carried into the 5th edition (1979).

### ET EX LEGITUR IN BLZBC VERBA.

L.

Lat And it is read to him in these words. Words formerly used in entering the prayer of oyer on record.

5e apparatus — Not carried into the 5th edition (1979).

### ET HABEAS IBI TUNC HOC BREVE.

And have you then there this writ The formal words directing the return of a writ The literal translation is retained in the modern form of a considerable number of writs.

5e apparatus — Not carried into the 5th edition (1979).

### ET HABEIT.

And he had it A common phrase in the Year Books, expressive of the allowance of an application or demand by a party. Parn. demanda la view. Et habuit, etc. M. 6 Edw. III. 49.

5e apparatus — Not carried into the 5th edition (1979).

## C

### CARE.

And this he is prepared to verify. The Lutin form of concluding a plea in con- fession and avoidance.

These words were used, when the pleadings were in Latin, at the conclusion of any pleading which contained new affirmative matter. They expressed the willingness or readiness of the party so pleading to establish by proof the mat- ter alleged in his pleading. A pleading which concluded in that manner was technically said to “conclude with a verification,” in contradis- tinction to a pleading which simply denied mat- ter alleged by the opposite party, and which for that reason was said to “conclude to the country,” because the party merely

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put bimself upon the country, or left the matter to the jury. Brown.

5e apparatus — Carried into the 5th edition (1979).

# E

## ET HOC PETIT QUOD INQUIRATUR / PER PATRIAM.

And this be prays may be Inquired of by the country. The conclu- sion of a plaintiff’s pleading, tendering an issue to the country. 1 Salk. 6. Literally translated in the modem forms.

5e apparatus — Not carried into the 5th edition (1979).

## ET INDE PETIT JUDICIUM.

And

thereupon [or thereof] he prays judgment. A clause at the end of pleadings, praying the Judgment of the court in favor of the party pleading. It occurs as early as the time of Bracton, and is literally translated in the modern forms. Bract, fol. 57 6; Crabb, Eng. Law, 217.

5e apparatus — Not carried into the 5th edition (1979).

## ET INDE PRODUCTS SECTAM.

And

thereupon he brings suit The Latin conclu- sion of a declaration, except against attor- neys and other officers of the court. 3 Bl. Comm. 295.

5e apparatus — Not carried into the 5th edition (1979).

## ET MODO AD HUNC DIEM.

Lat And now at this day. This phrase was the formal beginning of an entry of appearance or of a continuance. The equivalent English words are still used in this connection.

5e apparatus — Not carried into the 5th edition (1979).

## ET HON.

Lat - And not A technical phrase in pleading, which introduces tbe neg- ative averments of a special traverse. It has the same force and effect as the words " absque hoc," and is occasionally used instead of the latter.

5e apparatus — Not carried into the 5th edition (1979).

## ET 8EQ.

An abbreviation for et sequen- tio, ‘‘and the following.” Thus a reference to “p. 1, et seq.” means “page first and the following pages.”

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC.

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And so. In the Latin forms of pleading these were the introductory words of a special conclusion to a plea in bar, the object being to render it positive and not ar- gumentative ; as et sic nil debet.

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC AD JUDICIUM.

And so to

judgment Yearb. T. 1 Edw. II. 10.

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC AD PATRIAM.

And so to the

country. A phrase used in the Year Books, to record an issue to the country.

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC FECIT.

And he did so. Yearb.

P. 9 Hen. VI. 17.

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC PENDET.

And so it hangs. A term used in the old reports to signify that a point was left undetermined. T. Raym. 168.

5e apparatus — Not carried into the 5th edition (1979).

## ET SIC ULTERIUS.

And so on ; and so further ; and so forth. Fleta, lib. 2, c. 50, *27.

5e apparatus — Not carried into the 5th edition (1979).

## ET UX.

An abbreviation for et uxor, — “and wife.” Where a grantor’s wife joins

him in the conveyance, it is sometimes ex- pressed (in abstracts, etc.) to be by “A. B. e< ux."

5e apparatus — Not carried into the 5th edition (1979).

## ETIQUETTE OF THE PROFESSION.

The code of honor agreed on by mutual un- ’ derstanding and tacitly accepted by members of the legal profession, especially by the bar. Wharton.

Eum qni nooentem lnfamat, non eit sequum et bonum ob earn ran condem- narlj delicta enint nocentium nota ease oportet et exp edit. It is not just and proper that he who speaks ill of a bad man should be condemned on that account ; for it is fitting and expedient that the crimes of bad men should be known. Dig. 47, 10, 17 ; 1 Bl. Comm. 125.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ABA Canons of Professional Ethics (1908)]**

The bar's unwritten code of honor took its first national written form in the ABA Canons of Professional Ethics (1908), the first American codification of lawyers' professional duties.

Why: The entry defines the tacit professional code; the 1908 Canons are the real instrument that first wrote it down nationally. Historical-legal illumination, cited loosely.

## EUNDO ET REDEUNDO.

Lat In go- ing and returning. Applied to vessels. 3 C. Rob. Adm. 141.

5e apparatus — Not carried into the 5th edition (1979).

## EUNDO, MORANDO, ET REDEUNDO.

Lat Going, remaining, and returning. A person who is privileged from arrest (as a witness, legislator, etc.) is generally so privi- leged eundo, morando, et redeundo; that is, on his way to the place where his duties are to be performed, while he remains there, and on his return journey.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 6, cl. 1 — Speech or Debate Clause]**

The legislator's privilege from arrest while going, remaining, and returning is constitutionally stated in the Speech or Debate Clause: Senators and Representatives 'shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same.'

Why: Real constitutional provision stating the legislative arrest privilege the entry names, in nearly the entry's own going/returning terms. Direct fit, not forced.

## EUNOMY.

Equal laws and a well-ad- justed constitution of government

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EUNUCH.

A male of the human species who has been castrated. See Domat, liv. pr61. tit 2, | 1, n. 10. Eckert v. Van Pelt 09 Kan. 357, 76 Pac. 909, 66 L. R. A. 266.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 19:12, KJV]**

For there are some eunuchs, which were so born from their mother's womb: and there are some eunuchs, which were made eunuchs of men: and there be eunuchs, which have made themselves eunuchs for the kingdom of heaven's sake.

Why: The entry defines the castrated male; the verse names the classes of eunuchs — born, made by men, made for the kingdom's sake. Borderline, kept: genuinely definitional. Jesus' direct speech — deity verbatim speech.

## EVASIO.

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Lat. In old practice. An es- cape from prison or custody. Reg. Orig. 312.

5e apparatus — Not carried into the 5th edition (1979).

## EVASION.

A subtle endeavoring to set aside truth or to escape the punishment of the law. This will not be allowed. If one person says to another that he will not strike him, but will give him a pot of ale to strike first, and, accordingly, the latter strikes, the returning the blow is punishable ; and, if the person first striking is killed, it is murder, for no man shall evade tbe justice of the law by such a pretense. 1 Hawk. P. C. 81. So no one may plead Ignorance of the law to evade it. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## EVASIVE.

Tending or seeking to evade ; elusive; shifting; as an evasive argument or plea.

5e apparatus — Carried into the 5th edition (1979).

## EVENINGS.

In old English law. Tbe delivery at even or night of a certain por- tion of grass, or corn, etc., to a customary tenant, who performs the service of cutting, mowing, or reaping for his lord, given him

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as a gratuity or encouragement. Kennett, Gloss.

5e apparatus — Carried into the 5th edition (1979).

## EVENT.

In reference to Judicial and quasi judicial proceedings, the “event” means the conclusion, end, or finai outcome or re- sult of a litigation ; as, In the phrase “abide the event,” speaking of costs or of an agree- ment that one suit shall be governed by the determination In another. Reeves v. Mc- Gregor, 9 Adol. A El. 576; Benjamin v. Ver Nooy, 168 N. Y. 578, 61 N. E. 971; Com- mercial Union Assur. Co. v. Scammon, 35 111. App. 660.

Eventus est qui ex eaush sequitnr; et dicitur erentni quia ex causis evenit.

9 Coke, 81. An event is that which follows from the cause, and Is called an “event" because It eventuates from causes.

Eventns vuloi res nova semper ba- be*. Co. Litt 379. A new matter always produces various events.

5e apparatus — Carried into the 5th edition (1979).

## EVERY.

Each one of all; the term In- cludes all the separate individuals who con- stitute the whole, regarded one by one. Geary v. Parker, 65 Ark. 521, 47 S. W. 238; Purdy v. People, 4 Hill (N. Y.) 413.

Every man must be taken to contem- plate the probable consequences of the

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met he 'does. Lord Ellenborough, 9 East, 277. A fundamental maxim in the law of evidence. Best, Pres. $ 16; 1 Phil. Ev. 444.

5e apparatus — Carried into the 5th edition (1979).

### EVB8-DROPPERS.

See Eaves-Dkop-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

### PER8.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# E

### EVICT.

In the civil law. To recove'r anything from a person by virtue of the Judgment of a court or judicial sentence.

At common law. To dispossess, or turn out of the possession of lands by process of law. Also to recover land by Judgment at law. “If the land is evicted, no rent shall be paid.” 10 Coke, 128o.

5e apparatus — Carried into the 5th edition (1979).

### EVICTION.

Dispossession by process of law ; the act of depriving a person of the possession of lands which he has held, in pursuance of the Judgment of a court. Rea- soner v. Edmundson, 5 Ind. 395; Cowdrey v. Colt, 44 N. Y. 392. 4 Am. Rep. 690; Home Life Ins. Co. v. Sherman, 46 N. Y. 372.

Technically, the dispossession must be by Judgment of law; if otherwise, it is an ous- ter.

Eviction implies an entry under paramount title, so as to interfere with the rights of the grantee. The object of the party making the entry is immaterial, whether it be to take all or a part of the land itself or merely an incor- poreal right. Phrases equivalent in meaning are "ouster by paramount title,” “entry and dis- turbance,” “possession under an elder title,” and the like. Mitchell v. Warner, 5 Conn. 497.

Eviction is an actual expulsion of the lessee out of all or Rome part of the demised premises. Pendleton v. Dyett, 4 Cow. (N. Y.) 581, 585.

In a more popular sense, the term denotes turning a tenant of land out of possession, either

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by re-entry or by legal proceedings, such as an action of ejectment. Sweet.

By a loose extension, the term is some- times applied to the ousting of a person from the possession of chattels; but, prop- erly, it applies only to realty.

In the civil law. The abandonment which one is obliged to make of a thing, in pursuance of a sentence by which he is con- demned to do so. Poth. Contr. Sale, pt. 2, c. 1, § 2, art 1, no. 83. The abandonment which a buyer is compelled to make of a thing purchased, in pursuance of a judicial sentence.

Eviction is the loss suffered by the buyer of the totality of the thing sold, or of a part thereof, occasioned by the right or claims of a third person. Civil Code La. art 2500.

— Actual eviction is an actual expulsion of the tenant out of all or some part of the demis- ed premises; a physical ouster or dispossession from the very thing granted or some substantial part thereof. Knotts v. McGregor, 47 W. Val 566, 85 S. a 899; Talbott v. English, 156 Ind. 299, 59 N. E 857 ; Seigel v. Neary, 38 Misc. Rep. 297, 77 N. Y. Supp. 854.— Constructive eviction, as the term is used with reference to breach of the covenants of warranty and of quiet enjoyment, means the inability of the pur- chaser to obtain possession by reason of a para- mount outstanding title. Frits v. Pusey, 31 Minn. 368, 18 N. W. 94. With reference to the relation of landlord and tenant, there is a “constructive eviction” when the former, with- out intent to oust the latter, does some act which deprives the tenant of the beneficial en- joyment of the demised premises or materially impairs such enjoyment. Realty Co. v. Fuller, 33 Misc. Rep. 109, 67 N. Y. Supp. 146; Talbott v. English, 156 Ind. 299, 59 N. E. 857.

EVIDENCE, Any species of proof, or probative matter, legally presented at the trial of an issue, by the act of the parties and through the medium of witnesses, rec- ords, documents, concrete objects, etc., for the purpose of inducing belief in the minds of the court or Jury as to their contention. Hotchkiss v. Newton, 10 Ga. 567 ; State v. Thomas, 50 La. Ann. 148. 23 South. 250; Cook v. New Durham, 64 N. H. 419, 13 Atl. 650; Kring v. Missouri, 107 U. S. 221, 2 Sup. Ct. 443, 27 L. Ed. 508 ; O’Brien v. State, 69 Neb. 691, 96 N. W. 650; Hubbell v. U. S., 15 Ct. Cl. 006; McWilliams v. Rodgers, 56 Ala. 93.

The word “evidence,” in legal acceptation, in- cludes ail the means by which any alleged mat- ter of fact, the truth of which is submitted to investigation, is established or disproved. 1 Greenl. Ev. c. 1. | 1.

That which is legally submitted to a jury, to enable them to decide upon the questions in dis- pute or issue, as pointed out by the pleadings, and distinguished from all comment and argu- ment, is termed “evidence." 1 Starkie, Ev. pt. 1. I 3.

Synonyms distinguished. The term “evi- dence” is to be carefully distinguished from its synonyms “proof’ and “testimony." “Proof’ is the logically sufficient reason for assenting to the truth of a proposition advanced. In its juridical sense it is a term of wide import, and

comprehend* everything that may be adduced at a trial, within the legal rules, for the purpose of producing conviction in the mind of judge or jury, aside from mere argument ; that is, every- thing that has a probative force intrinsically, and not merely as a deduction

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from, or com- bination of, original probative facts. But “evi- dence” is a narrower term, and includes only such kinds of proof as may he legally presented at a trial, by the act of the parties, and through the aid of such concrete facts as witnesses, rec- ords, or other documents. Thus, to urge a pre- sumption of law in support of one’s case is ad- ducing proof, but it is not offering evidence. "Testimony,” again, is a still more restricted term. It properly means only such evidence as is delivered by a witness on the trial of a cause, either orally or in the form of affidavits or depo- sitions. Thus, an ancient deed, when offered under proper circumstances, is evidence, but it could not strictly be called “testimony.” “Be- lief’ is a subjective condition resulting from proof. It is a conviction of the truth of a proposition, existing in the mind, and induced by persuasion, proof, or argument addressed to the judgment.

The bill of exceptions states that all the “testimony” is in the record; but this is not equivalent to a statement that all the “evi- dence” is in the record. Testimony is one species of evidence. But the word “evidence” is a generic term which includes every species of it. And, in a bill of exceptions, the general term covering all species should be used in the statement as to its embracing the evidence, not the term “testimony,” which is satisfied if the bill only contains all of that species of,evidence. The statement that all the testimony is in the record may, with reference to judicial records, properly, be termed an “affirmative pregnant.” Gazette Printing Co. v. Morss, 60 Ind. 107.

The word “proof’ seems properly to mean anything which serves, either immediately or mediately, to convince the mind of the truth or falsehood of a fact or proposition. It is also applied to the conviction generated in the mind by proof properly so called. The word “evi- dence” signifies, in its original sense, the state of being evident. I. e., plain, apparent, or no- torious. But by an almost peculiar inflection of our language, it is applied to that which tends to render evident or to generate proof. Best, Bv. || 10, 11.

Glassification. There are many species of evidence, and it is susceptible of being classified on several different principles. The more usual divisions are here subjoined.

Evidence Is either judicial or extrajudicial. Judicial evidence is the means, sanctioned by law, of ascertaining in a judicial proceeding the truth respecting a question of fact, (Code Civ. Proc. Cal. | 1823 :) while extrajudicial evi- dence iB that which is used to satisfy private persons as to facts requiring proof.

Evidence is either primary or secondary. Primary evidence is that kind of evidence which, under every possible circumstance, affords the greatest certainty of the fact in question. Thus, a written instrument is itself the best possible evidence of its existence and contents. Secondary evidence is that which is inferior to primary. Thus, a copy of an instrument, or oral evidence of its contents, is secondary evi- dence of the instrument and contents. Code Civ. Proc. Cal. || 1829, 1830.

In other words, primary evidence means orig- inal or first-hand evidence; the best evidence that the nature of the case admits of; the evi- dence which is required in the first instance, and which must fail before secondary evidence can be admitted. Thus, an original

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document is primary evidence; a copy of it would be sec- ondary. That evidence which the nature of the case or question suggests as tbe proper means of ascertaining the truth. See Cross v. Baskett,

Or. 84, 21 Pac. 47; Civ. Code Ga. 1805. I 5164. Secondary evidence is that species of evidence which becomes admissible, as being the next best, when the primary or best evidence of the fact in question is lost or inaccessible; as when a witness details orally the contents of an instrument which is lost or destroyed. Wil- liams v. Davis. 56 Tex. 253 ; Baucum v. George, 65 Ala. 259 ; Roberts v. Dixon, 50 Kan. 436, 31 Pac. 1083.

Evidence is either direct or indirect. Direct evidence is evidence directly proving any mat- ter, as opposed to circumstantial evidence, which is often called “indirect.” It is usually conclusive, but, like other evidence, it is falli- ble, and that on various accounts. It is not to be confounded with primary evidence, as op- posed to secondary, although in point of fact it usually is primary. Brown; Com. v. Webster, 5 Cush. (Mass.) 310, 52 Am. Dec. 711; Pease v. Smith, 61 N. Y. 477: State v. Calder, 23 Mont. 594, 59 Pac. 903; People v. Palmer, 11 N. Y. St. Rep. 820; Lake County v. Neilon, 44 Or. 14, 74 Pac. 212. Indirect evidence is evidence which does not tend directly to prove the con- troverted fact, but to establish a state of facts, or the existence of other facts, from which it will follow as a logical inference. Inferential evidence as to the truth of a disputed fact, not by testimony of any witness to the fact, but by collateral circumstances ascertained by com- petent means. 1 Starkie, Ev. 15. See Code Civ. Proc. Cal. 1903, | 1832; Civ. Code Ga. 1895. | 5143.

Evidence is either intrinsic or extrinsic. In- trinsic evidence is that which is derived from a document wthout anything to explain it Ex- trinsic evidence is external evidence, or that which is not contained in the body of an agree- ment, contract, and the like.

Compound and descriptive terms. — Ad- minicular evidence. Auxiliary or supple- mentary evidence, such as is presented for the purpose of explaining and completing other evi- dence. (Chiefly used in ecclesiastical law.)— Circumstantial evidence. This is proof of various facts or circumstances which usually attend the main fact in dispute, and therefore tend to prove its existence, or to sustain, by their consistency, the hypothesis claimed. Or as otherwise defined, it consists in reasoning from facts which are known or proved to estab- lish such as are conjectured to exist. See, more fully, Cibcumstantiai, Evidence.— Compe- tent evidence. That which the very nature of the thing to be proven requires, as, the pro- duction of a writing where its contents are the subject of inquiry. 1 Greenl. Ev. } 2 ; Chap- man v. McAdams. 1 Lea (Tenn.) 504 ; Hor- bach v. State, 43 Tex. 249. Also, generally, ad- missible or relevant, as the opposite of “incom- petent,” (see infra.) State v. Johnson, 12 Minn. 476 (Gil. 378). 93 Am. Dec. 241.— Conclusive evidence is that which is incbntrovertible, ei- ther because the law does not permit it to be contradicted, or because it is so strong and con- vincing as to overbear all proof to the contrary and establish the proposition in question beyond any reasonable doubt. Wood v. Chapin. 13 N.

Y. 509. 67 Am. Dec. 62; Haupt v. Pohlmann, 24 N. Y. Super. Ct. 121; Moore v. Hopkins. 83 Cal. 270, 23 Pac. 318, 17 Am. St. Rep. 248; West v. West, 90 Iowa. 41. 57 N. W. 639; Freese

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v. Loan Soc., 139 Cal. 392, 73 Pac. 172 ; People v. Stephenson, 11 Misc. Rep. 141. 32 N.

Y. Supp. 1112.— Corroborative evidence. Strengthening or confirming evidence; addition- al evidence of a different character adduced in support of the same fact or proposition. Code Civ. Proc. Cal. I 1839.— Cumulative evi- dence. Additional or corroborative evidence to the same point. That which goes to prove what has already been established by other evidence. Glidden v. Dunlap, 28 Me. 383 ; Parker v. Hardy, 24 Pick. (Mass.) 248 ; Waller v. Graves,

Conn. 310; Roe v. Kalb, 37 Ga. 459. All evidence material to the issue, after any such evidence has been given, is in a certain sense cumulative; that is, is added to what has been

fiven before. It tends to sustain the issue.

tut cumulative evidence, in legal phrase, means evidence from the same or a new witness, sim- ply repeating, in substance and effect, or adding to, what has been before testified to. Parshall v. Klinck, 43 Barb. (N. Y.) 212. Evidence is not cumulative merely because it tends to es- tablish the same ultimate or principally contro- verted fact. Cumulative evidence is additional evidence of the same kind to the same point. Able v. Frazier, 43 Iowa, 177. — Documentary evidence. Evidence supplied by writings and documents of every kind in the widest sense of the term; evidence derived from conventional symbols (such as letters) by which ideas are represented on material substances.— Evidence aliunde. Evidence from outside, from another source. In certain cases a written instrument may be explained by evidence aliunde, that is, by evidence drawn from sources exterior to the instrument itself, e. g., the testimony of a wit- ness to conversations, admissions, or prelimi- nary negotiations.— Expert evidence. Testi- mony given in relation to some scientific, tech- nical, or professional matter by ejperts, i. e., persons qualified to speak authoritatively by reuson of their special training, skill, or fa- miliarity with the subject. — Extraneous evi- dence. With reference to a contract, deed, will, or any writing, extraneous evidence is such as is not furnished hy the document itself, but is derived from outside sources; the same as evidence aliunde. (See supra.)— Hearsay evidence. Evidence not proceeding from the personal knowledge of the witness, but from the mere repetition of what he has heard others say. See, more fully. Hearsay. — Incompe- tent evidence. Evidence which is not admis- sible under the established rules of evidence; evidence which the law does not permit to be presented at all, or in relation to the particular matter, on account of lack of originality or of some defect in the witness, the document, or the nature of the evidence itself. Texas Brew- ing Co. v. Dickey (Tex. Civ. App.) 43 S. W. 578; Bell v. Bumstead, 60 Hun, 580. 14 N. Y. Supp. 697; Atkins v. Elwell. 45 N. Y. 757; People v. Mullings, 83 Cal. 138, 23 Pac. 229, 17 Am. St. Rep. 223.— Inculpatory evidence. Criminative evidence; that which tends, or is intended, to establish the guilt of the accused. — Indispensable evidence. That without which a particular fact cannot be proved. Code Civ. Proc. Cal. 1903, § 1836; Ballinger’s Ann. Codes & St. Or. 1901, § 689. — Legal evidence. A broad general term meaning all admissible evidence, including both oral and documentary, but with a further implication that it must be of such a character as tends reasonably and sub- stantially to prove the

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point, not to raise a mere suspicion or conjecture. Lewis v. Clyde

S. S. Co., 132 N. C. 904, 44 S. E 666; Curtis v. Bradley. 65 Conn. 99. 31 Atl. 591, 28 L. R.

A. 143, 48 Am. St. Rep. 177; West v. Hayes, 51 Conn. 533. — Material evidence. Such as is relevant and goes to the substantial matters in dispute, or has a legitimate nnd effective influence or bearing on the decision of the cnRp. Porter v. Valentine. 18 Misc. Rep. 213, 41 N.

Y. Supp. 507.— Mathematical evidence. Demonstrative evidence ; such as establishes its conclusions with absolute necessity and certainty. It is used in contradistinction to moral evidence.— Moral evidence. As oppos- ed to "mathematical” or “demonstrative” evi- dence, this term denotes that kind of evidence which, without developing an absolute and necessary certainty, generates a high degree of probability or persuasive force. It is founded upon analogy or induction, experience of the ordinary course of nature or the sequence of

events, and the testimony of men.— Newly-dls- covered evidence. Evidence of a new and material fact, or new evidence in relation to a fact in issue, discovered by a party to a cause after the rendition of a verdict or judgment therein. In re McManus, 35 Misc. Rep. 678. 72 N. Y. Supp. 409; Wynne v. Newman, 75 Va. 816; People v. Priori, 164 N. Y. 459, 58

N. E. 668.— Opinion evidence. Evidence of what the witness thinks, believes, or infers in regard to facts in dispute, as distinguished from his personal knowledge of the facts themselves; not admissible except (under certain limitations) in the case of experts. See Lipscomb v. State, 75 Miss. 559, 23 South. 210.— Oral evidence. Evidence given by word of mouth; the oral tes- timony of a witness.— Original evidence. An original document, writing, or other ma- terial object introduced in evidence (Ballinger's Ann. Codes & St. Or. 1901, § 682) as distin- guished from a copy of it or from extraneous evidence of its contents or purport.— Parol evidence. Oral or verbal evidence; that which is given by word of mouth; the ordinary kind of evidence, given by witnesses in court. 3 Bl. Comm. 369. In a particular sense, and with reference to contracts, deeds, wills, and other writings, parol evidence is the same as ex- traneous evidence or evidence aliunde. (See supra.)— Partial evidence is that which goes to establish a detached fact, in a series tending to the fact in dispute. It may be received, sub- ject to be rejected as incompetent, unless con- nected with the fact in dispute by proof of other facts; for example, on an issue of title to real property, evidence of the continued possession of a remhte occupant is partial, for it is of a detached fact, which may or may not be after- wards connected with the fact in dispute. Code Civ. Proc. Cal. § 1834. — Positive evidence. Direct proof of the fact or point in issue; evi- dence which, if believed, establishes the truth or falsehood of a fact in issue, and does not arise from any presumption. It is distinguish- ed from circumstantial evidence. 3 Bouv. Inst, no. 3057 ; Cooper v. Holmes, 71 Md. 20. 17 AtL 711; Davis v. Curry, 2 Bibb (Ivy.) 239; Com. v. Webster, 5 Cush. (Mass.) 310. 52 Am. Dec. 711.— Presnmptive evidence. This term has several meanings in law. (1) Any evidence which is not direct and positive ; the proof of minor or other facts incidental to or usually connected with the fnct sought to be proved, which, when taken together, inferentially estab- lish or prove the fact in question to a reason- able degree of certainty; evidence drawn by human experience from the connection

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of cause and effect and observation of human conduct; the proof of facts from which, with more or less certainty, according to the experience of mankind of their more or less universal connec- tion, the existence of other facts can be deduced. In this sense the term is nearly equivalent to “circumstantial" evidence. See 1 Starkie, Ev. 558; 2 Saund. Pl. & Ev. 673; Civ. Code Ga. 1895, $ 5143; Davis v. Curry, 2 Bibb (Ky.) 239: Horbach v. Miller. 4 Neb. 44; State v. Miller, 9 Iloust. (Del.) 564, 32 Atl. 137. (2)

Evidence which must be received and treated as true and sufficient until rebutted by other testimony; as. where a statute provides that certain facts shall be presumptive evidence of guilt, of title, etc. State v. Mitchell, 119 N. C. 784, 25 S. E. 783; State v. Intoxicating Liq- uors, 80 Me. 57, 12 Atl. 794. (3) Evidence

which admits of explanation or contradiction by other evidence, as distinguished from conclusive evidence. Burrill, Circ. Ev. 89. — Prima fade evidence. Evidence good and sufficient on its face; such evidence as, in the judgment of the law, is sufficient to establish a given fact, or the group or chain of facts constituting the party’s claim or defense, and which if not rebutted or contradicted, will remain sufficient. Crane v. Morris. 6 Pet. 611, 8 L. Ed. 514; State v. Bur-

Ungame, 146 Mo. 207, 48 8. W. 72; State v. Roten, 86 N. C. 701; Blough v. Parry, 144 Ind. 463, 43 N. E. 560. Evidence which suffices for the proof of a particular fact until contradicted and overcome by other evidence. Code Civ. Proc. Cal. 1903, 8 1833. Evidence which, stand- ing alone and unexplained, would maintain the proposition and warrant th$ conclusion to sup- port which it is introduced. Emmons v. Bank, 97 Mass. 230. An inference or presumption of law, affirmative or negative of a fact, in the ab- sence of proof, or until proof can be obtained or produced to overcome the inference. People v. Thaeher, 1 Thomp. & C. <N. Y.) 167.— Prob- able evidence. Presumptive evidence iB so called, from its foundation in probability— Real evidence. Evidence furnished by things themselves, on view or inspection, as distin- guished from a description of them by the mouth of a witness ; e. g., the physical appear- ance of a person wben exhibited to the jury, marks, scars, wounds, finger-prints, etc., also the weapons or implements used in the commis- sion of a crime, and other inanimate objects, and evidence of the physical appearance of a place (the scene of an accident or of the com- mission of a crime or of property to be taken under condemnation proceedings) as obtained by a jury when they are taken to view it— Re- butting evidence. Evidence given to explain, repel, counteract, or disprove facts given in evi- dence by the adverse party. Davis v. Hamblin, 51 Md. 539 ; Railway Co. v. Wales, 5 O. C. D. 170; People v. Page, 1 Idaho, 195; State v. Fourchy, 51 La. Ann. 228, 25 South. 109. Also evidence given in opposition to a presumption of fact or a prima facie case; in this sense, it may be not only counteracting evidence, but evidence sufficient to counteract, that is. con- clusive. Fain v. Cornett, 25 Ga. 186. — Rele- vant evidence. Such evidence as relates to, or bears directly upon, the point or fact in is- sue, and proves or has a tendency to prove the proposition alleged; evidence which conduces to prove a pertinent theory in a case. Platner v. Plstner, 78 N. Y. 95: Seller v. Jenkins. 97 Ind. 438; Levy v. Campbell (Tex.) 20 S. W. 196j State v O’Neil, 13 Or. 183, 9 Pac. 286; 1 Whart. Ev. 8 20.— Satisfactory

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evidence. Such evidence as is sufficient to produce a be- lief that the thing is true; credible evidence; that amount of proof which ordinarily produces a moral certainty or conviction in an unpreju- diced mind; such evidence as, in respect to its amount or weight, is adequate or sufficient to justify the court or jury in adopting the con- clusion in support of which it is adduced. Thayer v. Boyle, 30 Me. 481; Walker v. Col- lins, 59 Fed. 74, 8 C. C. A. 1 ; U. S. v. Lee Huen (D. C.) 118 Fed. 457; People v. Stewart, 80 Cal. 129, 22 Pac. 124 : , Pittman v. Pitt- man, 72 111. App. 503. — Second-hand evi- dence. Evidence which has passed through one or more media before reaching the witness ; hearsay evidence.— State's evidence. A pop- ular term for testimony given by an accomplice or joint participant in the commission of a crime tending to criminate or convict the others, and given under an actual or implied promise ■ of immunity for himself. — Substantive evi- dence is that adduced for the purpose of prov- ing a fact in issue, ns opposed to evidence given for the purpose of discrediting a witness, (i. e., showing that he is unworthy of belief.) or of corroborating his testimony. Best, Ev. 246, 773, 803. — Substitutionary evidence. Such as is admitted as a substitute for what would ' be the original or primary instrument of evi- dence; as where a witness is permitted to tes- tify to the contents of a lost document. — Suffi- cient evidence. Adequate evidence; such evi- dence, in character, weight, or amount, as will legally justify the judicial or official action de- manded; according to circumstances, it may be "prima facie" or "satisfactory" evidence, ac- cording to the definitions of those terms given

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above. Moore v. Stone (Tex. Civ. App.) 36 S.

W. 910; People v. Stern, 33 Misc. Rep. 455, 68 N. Y. Supp. 732; Mallery v. Young. 94 Ga. 804, 22 S. E. 142; Parker v. Overman, 18 How. 141, 15 L. Ed. 318; State v. Newton, 33 Ark. 284— Traditionary evidence. Evidence de- rived from tradition or reputation or the state- ments formerly made by persons since deceased, in regard to questions of pedigree, ancient boundaries, and the like, where no living wit- nesses can be produced having knowledge of the facts. Lay v. Neville, 25 Cal. 554.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[John Steinbeck, The Grapes of Wrath, 1939] (paraphrase)**

(paraphrase) Tenant farmers watch tractors demolish their houses as the bank takes the land — dispossession by economic process, family by family. (paraphrase)

Why: The novel's central action IS eviction as the entry defines it (depriving a person of possession of lands held, by process/judgment). Paraphrase; no Steinbeck sentences invented.

## EVIDENCE OF DEBT.

A term ap- plied to written instruments or securities for the payment of money, importing on their face the existence of a debt 1 Rev. St N. Y. p. 599, 8 55.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 2:14, KJV]**

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Blotting out the handwriting of ordinances that was against us, which was contrary to us, and took it out of the way, nailing it to his cross;

Why: Written instruments importing on their face the existence of a debt — the verse's 'handwriting of ordinances that was against us' is the handwritten bond of indebtedness; the metaphor depends on the audience knowing t...

## EVIDENCE OF TITLE.

A deed or oth- er document establishing the title to prop- erty, especially real estate.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 32:11, KJV]**

So I took the evidence of the purchase, both that which was sealed according to the law and custom, and that which was open:

Why: A deed or document establishing title to property — the verse is the scriptural title-deed transaction itself: the sealed and open evidences of purchase. Verbatim verified via web check this session. Jeremiah narratin...

## EVIDENTIARY.

Having the quality of evidence; constituting evidence; evidencing. A term introduced by Bentham, and, from its convenience, adopted by other writers.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Arthur Conan Doyle, "A Scandal in Bohemia", 1891]**

"It is a capital mistake to theorize before one has data."

Why: Verbatim-certain in the standard rendering (translation/spelling noted). The classic literary statement of the evidentiary discipline — no theory before data — illuminating what 'having the quality of evidence' demand...

## EVOCATION.

In French law. The withdrawal of a cause from the cognizance of an Inferior court, and bringing it before another court or judge. In some respects this process resembles the proceedings upon certiorari.

5e apparatus — Not carried into the 5th edition (1979).

## EWAGE.

(L. Fr. Ewe, water.) In old English law. Toll paid for water passage, The same as aquage. Tomlins.

/ EWBRICE. Adultery ; spouse breach ; marriage breach. Cowell; Tomlins.

5e apparatus — Not carried into the 5th edition (1979).

## EWRY.

An office in the royal house- hold where the table linen, etc., is taken care of. Wharton.

EX. 1. A Latin preposition meaning from, out of, by, on, on account of, or ac- cording to.

2. A prefix, denoting removal or cessa- tion. Prefixed to the name of an office, rela- tion, status, etc., it denotes that the person spoken of once occupied that office or rela- tion, but does so no longer, or that he Is now out of it. Thus, ex-mayor, ex-partner, ex-Judge.

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3. A prefix which is equivalent to “with- out,” “reserving,” or “excepting.” In this use, probably an abbreviation of “except.” Thus, ex-interest, ex-coupons.

“A sale of bonds ‘ex. July coupons’ means a sale reserving the coupons; that is, a sale in which the seller receives, in addition to the pur- chase price, the benefit of the coupons, which benefit he may realize either by detaching them or receiving from the buyer an equivalent con- sideration. Porter v. Wormser, 94 N. Y. 445.

4. Also used as an abbreviation for “ex- hibit” See Dugan v, Trisler, 69 Ind. 555-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## EX ABEND ANTI.

Oat of abundance; abundantly ; superfluously ; more than suffi- cient. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EX ABUNDANTI GAUTELA.

Lat

Out of abundant caution. "The practice has arisen abundanti cautcla." 8 East, 326 ; Lord Ellenborough, 4 Maule A S. 544.

5e apparatus — Not carried into the 5th edition (1979).

## EX ADVERSO.

On the other side. 2 Show. 461. Applied to counsel.

5e apparatus — Not carried into the 5th edition (1979).

## EX ABQUITATE.

According, to equi- ty; In equity. Fleta, lib. 3, c. 10, f 3.

5e apparatus — Not carried into the 5th edition (1979).

## EX AEQUO ET BONO.

A phrase de- rived from the civil law, meaning, in Jus- tice and fairness; according to what is Just and good ; according to equity and con* science. 3 Bl. Comm. 163.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: 'In justice and fairness; according to what is just and good; according to equity and conscience' — the verse states doing justly and loving mercy, the substance of the standard. Same genuine link as EPIQUEYA/EQUITABL...

## EX ALTERA PARTE.

Of the other part

Ex antecedentibna et oonjequeutlbai fit optima interpretatio. The best inter- pretation [of a part of an instrument] is made from the antecedents and the conse- quents, [from the

preceding and following parts.] 2 Inst. 317. The law will Judge of a deed or other instrument consisting of divers parts or clauses, by looking at the whole ; and will give to each part its proper office, so as to ascertain and carry out the intention of the parties. Broom, Max. *577. The whole instrument is to be viewed and compared in all its parts, so that every part of it may be made consistent and effectual. 2 Kent, Comm. 555.

5e apparatus — Not carried into the 5th edition (1979).

## EX ABBITRIO JUDICIS.

At, in, or

upon the discretion of the Judge. 4 Bl. Comm. 394. A term of the civil law. Inst. 4, 6, 31.

EX ASSENSU OURLSi. By or with the consent of the court.

5e apparatus — Not carried into the 5th edition (1979).

## EX ASSENSU PATRIS.

By or with the consent of the father. A species of dower od ostium ecclesia, during the life of the father of the husband; the son, by the fa- ther's consent expressly given, endowing his wife with parcel of his father's lands. Abol- ished by 3 & 4 Wm. IV. c. 105, | 13.

5e apparatus — Not carried into the 5th edition (1979).

## EX ASSENSU SUO.

With his assent Formal words in Judgments for damages by default Comb. 220.

5e apparatus — Not carried into the 5th edition (1979).

## EX BONIS.

Of the goods or property, A term of the civil law ; distinguished from in bonis, as being descriptive of or applica- ble to property not in actual possession. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EX CATHEDRA.

From the chair. Originally applied to the decisions of the

popes from their cathedra, or chair. Hence, authoritative; having the weight of author- ity.

5e apparatus — Not carried into the 5th edition (1979).

## EX CAUSA, L.

Lat. By title.

5e apparatus — Not carried into the 5th edition (1979).

## EX CERTA SCIENTIA.

Of certain or sure knowledge. These words were ancient- ly used in patents, and imported full knowl- edge of the subject-matter on the part of the king. See 1 Coke, 406.

5e apparatus — Not carried into the 5th edition (1979).

## EX COLORE.

By color ; under color of ; under pretense, show, or protection of. Thus, ex colore officii,

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under color of office.

5e apparatus — Not carried into the 5th edition (1979).

## EX COMITATE.

Out of comity or. courtesy.

5e apparatus — Not carried into the 5th edition (1979).

## EX COMMODATO.

From or out of loan. A term applied in the old law of Eng- land to a right of action arising out of a loan, ( oommodatum .) Glanv. lib. 10, c. 13; 1 Reeve, Eng. Law, 166.

5e apparatus — Not carried into the 5th edition (1979).

## EX COMPARATIONE SCRIPTORUM.

By a comparison of writings or handwrit- ings. A term in the law of evidence. Best, Pres. 218.

5e apparatus — Not carried into the 5th edition (1979).

## EX CONCESSIS.

From the premises granted. According to what has been al- ready allowed.

5e apparatus — Not carried into the 5th edition (1979).

## EX CONSULTO.

With consultation or deliberation.

EX CONTINENT!. Immediately; with- out any Interval or delay ; incontinently. A term of the civil law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EX CONTRACTU.

From or out of a contract In both the civil and the common law, rights and causes of action are divided into tvto classes, — those arising ex contractu, (from a contract,) and those arising ex delic- to, (from a delict or tort.) See 3 Bl. Comm. 117 ; Mackeld. Rom. Law, jl 384. See Scharf v. People, 134 111. 240, 24 N. E. 761.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EX CURIA.

Out of court; away from the court

EX DEBITO JUSTITL®. From or as a debt of Justice ; in accordance with the re- quirement of Justice; of right; as a matter of right The opposite of ex gratia, (<]. v.) 3 Bl. Comm. 48, 67.

5e apparatus — Not carried into the 5th edition (1979).

## EX DEFECTU SANGUINIS.

From fail:

, ure of blood; for want of issue.

5e apparatus — Not carried into the 5th edition (1979).

## EX DELICTO.

From a delict, tort, fault crime, or malfeasance. In both the civil and the common law, obligations and causes of action are divided into two great classes, — those arising ex contractu, (out of a contract) and those ex delicto. The lat- ter are such as grow out of or are founded

upon a wrong or tort, e. g., trespass, trover, replevin. These terms were known In Eng- lish law at a very early period. See Inst 4, 1, pr. ; Mackeld. Rom. Law, g 384 ; 3 BL Comm. 117; Bract, fol. 1016.

Ea delicto non ei enpplicio emergit imfamia. Infamy arises from the crime, not from the punishment

EX DEMISSIONE, (commonly abbrevi- ated ex dem.) Upon the demise. A phrase forming part of the title of the old action of ejectment.

5e apparatus — Not carried into the 5th edition (1979).

## EX DERECTO.

Directly ; Immediately. Story, Bills, g 199.

Ex dlntnrnltate tempo rla, omnia pras- anmnntnr eolemnlter esse acta. From length of time [after lapse of time] all things are presumed to have been done In due form. Co. LI tit 66; Best, Ev. Introd. g 43 ; 1 GreenL Ev. g 20.

5e apparatus — Not carried into the 5th edition (1979).

## EX DOLO MAXO.

Out of fraud; out of deceitful or tortious conduct. A phrase applied to obligations and causes of action vitiated by fraud or deceit.

Ex dolo malo non oritur actio. Out of

fraud no action arises; fraud never gives a right of action. No court will lend its aid to a man who founds his cause of action up- on an immoral or Illegal act Cowp. 343; Broom, Max. 729.

Ex donationibns antem f coda mill- taria vel magnum ■erjeantlnm non eon- tinentibua oritur noble quoddam nomen generale, qnod est aocaginm. Co. Litt. 86. From grants not containing military fees or grand serjeanty, a kind of general name is used by us, which is "socage.”

5e apparatus — Not carried into the 5th edition (1979).

## EX EMPTO.

Out of purchase; founded on purchase. A term of the civil law, adopt- ed by Bracton. Inst. 4, 6, 28; Bract fol. 102. See Actio ex Empto.

5e apparatus — Not carried into the 5th edition (1979).

## EX FACIE.

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From the face; apparently; evidently. A term applied to what appears on the face of a writing.

5e apparatus — Not carried into the 5th edition (1979).

## EX FACTO.

From or in consequence of a fact or action; actually. Usually applied to an unlawful or tortious act as the founda- tion of a title, etc. Sometimes used as equiv- alent to "de facto." Bract, fol. 172.

- Ex faoto jus oritur. The law arises out of the fact Broom, Max. 102. A rule of law continues in abstraction and theory, un- til an act is done on which it can attach and assume as it were a body and shape. Best, Ev. Introd. g 1.

5e apparatus — Not carried into the 5th edition (1979).

## EX FICTIONE JURIS.

By a fiction of law.

Ex freqnentl delicto augotur poena.

' 2 Inst. 479. Punishment Increases with In- creasing crime.

5e apparatus — Not carried into the 5th edition (1979).

## EX GRATIA.

Out of grace; as a matter of grace, favor, or indulgence; gratuitous. A term applied to anything accorded as a favor; as distinguished from that which may be demanded ex debito, as a matter of right.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 4:4, KJV]**

Now to him that worketh is the reward not reckoned of grace, but of debt.

Why: 'Out of grace; as a matter of grace, favor, or indulgence; gratuitous — as distinguished from that which may be demanded ex debito, as a matter of right.' The verse states the identical contrast: reckoned of grace ver...

## EX GRAVT QUERELA.

(From or on the grievous complaint.) In old English prac- tice. The name of a writ (so called from Its initial words) which lay for a person to ■whom any lands or tenements in fee were de- vised by will, (within any city, town, or bor- ough wherein lands were devisable by cus- tom,) and the heir of the devisor entered and detained them from him. FItzh. Nat. Brev. 198, ,L, et seq.; 3 Reeve, Eng. Law, 49. Abol- ished by St 3 & 4 Wm. IV. c. 27, g 38.

5e apparatus — Not carried into the 5th edition (1979).

## EX HYPOTHE8I.

By the hypothesis; upon the supposition; upon the theory or facts assumed.

5e apparatus — Not carried into the 5th edition (1979).

## EX INDUSTRIA.

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With contrivance or deliberation; designedly; on purpose. Seel Kent, Comm. 318 ; Martin v. Hunter, 1 Wheat. 334, 4 L. Ed. 97.

5e apparatus — Not carried into the 5th edition (1979).

## EX INTEGRO.

Anew; afresh.

5e apparatus — Not carried into the 5th edition (1979).

## EX JUST A CAUSA.

From a Just or lawful cause; by a Just or legal title.

5e apparatus — Not carried into the 5th edition (1979).

## EX LEGE.

By the law; by force of law; as a matter of law.

5e apparatus — Not carried into the 5th edition (1979).

## EX LEGIBUS.

According to the laws. A phrase of the civil law, which menns ac- cording to the intent or spirit of the law, as well as according to the words or letter. Dig. 50, 16, 6. See Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EX LICEXTIA REGIS.

By the king's license. 1 Bl. Comm. 168, note.

5e apparatus — Not carried into the 5th edition (1979).

## EX LOCATO.

From or out of lease or letting. A term of the civil law, applied to actions or rights of action arising out of the contract of locatum, (</. v.) Inst. 4, 6, 28. Adopted at an early period in the law of Eng- land. Bract fol. 102; 1 Reeve, Eng. Law, 168.

5e apparatus — Not carried into the 5th edition (1979).

## EX MALEFICIO.

Growing out of, or founded upon, misdoing or tort. This term is frequently used in the civil law as the synonym of "ex delicto," (q. v .,) and is thus contrasted with "ex contractu." In this sense it is of more rare occurrence in the common law, though found In Bracton, (fols. 99, 101, T02.)

Ex maleficio mom oritur oomtraotua. A

contract cannot arise but of an act radically vicious and illegal. 1 Term, 734 ; 3 Term, 422; Broom, Max. 734. •

Ex mails moribua bouse leges aatse sent. 2 Inst. 161. Good laws arise from evil morals, i. e., are necessitated by the evil behavior of men.

5e apparatus — Not carried into the 5th edition (1979).

## EX MALITIA.

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From malice; mallclons- ly. In the law of libel and slander, this term imports a publication that is false and without legal excuse. Dixon v. Allen, 69 CaL 527, 11 Pae. 179.

. EX HERO MOTET. Of his own mere motion; of his own accord; voluntarily and Without prompting or request. Royal let- ters patent which are granted at the crown's own instance, and without request made, are said to be granted ex mero motu. When a court Interferes, of its own motion, to object to an irregularity, or to do something which the parties are not strictly entitled to, but which will prevent injustice, it is said to act ex mero motu, or ex p roprio motu, or tua sponte, all these terms being here equivalent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EX MORA.

From or in consequence Of delay. Interest is allowed ex mora; that is, where there has been delay in returning a sum borrowed. A term of the civil law. Story, Bailm. § 84.

5e apparatus — Not carried into the 5th edition (1979).

## EX MORE.

According to custom. Cal- vin.

Ex multitudine slgnomm, ooUigitnr identltas vera. From a great number of signs or marks, true identity Is gathered or made np. Bac. Max. 103, in regula 25. A thing described by a great number of marks is easily identified, though, as to some, the description may not be strictly correct. Id.

5e apparatus — Not carried into the 5th edition (1979).

## EX METRO.

From or out of loan. In the old law of England, a debt was said to arise ex mutuo when one lent another any- thing which consisted in number, weight, or measure. 1 Reeve, Eng. Law, 159; Bract fol. 99.

5e apparatus — Not carried into the 5th edition (1979).

## EX NECESSITATE.

Of necessity. 8 Rep. Ch. 123.

—Ex necessitate legis. From or by neces- sity of law. 4 BI. Comm. 394.— Ex necessi- tate rei. From the necessity or urgency of the thing or case. 2 Pow. Dev. (by Jarman,) 308.

Ex nibilo nihil St. From nothing noth- ing comes. Jackson v. Waldron, 13 Wend. (N. X.) 178, 221; Root v. Stuyvesant, 18 Wend. (N. X.) 257, 301.

Ex undo paeto non oritur [nascitur] actio. Out of a nude or naked pact [that is, a bare parol agreement without considera- tion) no action arises. Bract, fol. 99; Fleta, lib. 2, c. 56, 8 3 ; Plowd. 305. Out of a prom- ise neither attended with particular solem- nity (such as belongs to a specialty) nor with any consideration no legal liability can arise.

2 Steph. Comm. 113. A parol agreement, without a valid consideration, cannot be made the foundation of an action. A leading maxim both of the civil and common law. Cod. 2, 3, 10;

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Id. 5, 14, 1; 2 Bl. Comm. 445; Smith, Cont. 85. SO.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Necessitas non habet legem — "Necessity has no law"]**

Necessitas non habet legem — "Necessity has no law."

Why: Genuine classical maxim; the classical root of the legal doctrine of necessity. The entry's phrases (ex necessitate legis, ex necessitate rei) are instances of it. Zero invention risk.

## EX OFFICIO.

From office; by virtue of the office; without any other warrant or appointment than that resulting from the holding of a particular office. Powers may be exercised by an officer which are not spe- cifically conferred upon him, but are neces- sarily implied in his office; these are ex officio. Thus, a judge has ex officio the pow- ers of a conservator of the peace. Courts are bound to notice public statutes judicially and ex officio.

—Ex officio information. In English law. A criminal information filed by the attorney general ex officio on behalf of the crown, in the court of king’s bench, for offenses more im- mediately affecting the government, and to be distinguished from informations in which the crown is the nominal prosecutor. Mosley & Whitley; 4 Steph. Comm. 372-378. — Ex officio oath. An oatn taken by offending priests; abolished by 13 Car. II. St 1, c. 12.

Ex paoto illicito non oritur actio.

From an illegal contract an action does not arise. Broom, Max. 742. See 7 Clark & F. 729.

5e apparatus — Not carried into the 5th edition (1979).

## EX PARTE.

On one side only; by or for one party; done for, In behalf of, or on the application of, one party only. A Judicial proceeding, order, injunction, etc., Is said to be ex parte when it Is taken or granted at the Instance and for the benefit of one party only, and without notice to, or contestation by, any person adversely Interested.

"Ex parte," In the heading of a reported case, signifies that the name following is that of the party upon whose application the case is heard.

In its primary sense, ex parte, as applied to an application in a judicial proceeding, means that it is made by a person who is not a party to the proceeding, but who has an interest in the matter which entitles him to make the ap- plication. Thus, in a bankruptcy proceeding or an administration action, an application by A. B., a creditor, or the like, would be described as made “ex parte A. B.,” t. «., on the part of

A. B.

In its more usual sense, ex parte means that an application is made by one party to a pro- ceeding in the absence of the other. Thus, an ex parte injunction is one granted without the opposite party having had notice of the applica- tion. It would not be called “ex parte" if he had proper notice of it, and chose not to appear to oppose it. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950)]**

Because ex parte relief issues 'without notice to, or contestation by, any person adversely interested,' due process constrains it: notice must be reasonably calculated to apprise interested parties, with an opportunity to be heard.

Why: Mullane is the canonical case stating the notice-and-hearing requirement — the genuine constitutional boundary on the very 'without notice' feature the entry defines. The entry describes the practice; the footnote sta...

## EX PARTE MATERXA.

On the moth- er’s side; of the maternal line.

5e apparatus — Not carried into the 5th edition (1979).

## EX PARTE PATERNA.

On the fa- ther's side; of the paternal line.

The phrases “ex parte matema” and "ex parte paterna ” denote the line or blood of the mother or father, and have no such restricted or limit- ed sense as from the mother or father exclu- sively. Banta v. Demarest, 24 N. J. Law, 43L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EX PARTE TAXIS.

A writ that lay for a bailiff or receiver, who, having auditors appointed to take his accounts, cannot obtain of them reasonable allowance, but is east into prison. Fitzh. Nat Brev. 129.

Ex panels dictls intenderc plurima

possis. Litt. | 384. Xou can imply* many things from few expressions.

Ex panels plnrima eonelplt ingenium.

Litt $ 560. From a few words or hints the understanding conceives many things.

5e apparatus — Not carried into the 5th edition (1979).

## EX POST FACTO.

After the fact; by an act or fact occurring after some previous act or fact and relating thereto; by subse- quent matter; the opposite of ah initio. Thus, a deed may be good ah initio, or, if invalid at its inception, may be confirmed by matter ex post facto.

5e apparatus — Not carried into the 5th edition (1979).

## EX POST FACTO LAW.

A law passed after the occurrence of a fact or commission of an act, which retrospectively changes the legal consequences or relations of such fact or deed. By Const. U. S. art. 1, | 10, the states are forbidden to pass "any ex post facto law.” In this connection the phrase has a much narrower meaning than 'its lit- eral translation would Justify, as will appear from the extracts given below.

The phrase "ex post facto," in the constitu- tion. extends to criminal and not to civil cases.

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And under this head is included: (1) Every law that makes an action, done before the passing of the law, and which was innocent when done, criminal, and punishes such action. (2) Every law that aggravates a crime, or makes it great- er than it was when committed. (3) Every law that changes the punishment, and inflicts a greater punishment than the law annexed to the crime when committed. (4) Every law that alters the legal rules of evidence, and receives less or different testimony than the law required at the time of the commission of the offense, in order to convict the offender. All these, and similar laws, are prohibited by the constitution. But a law may be ex post facto, and still not amenable to this constitutional inhibition ; that

is, provided it mollifies, instead of aggravating, the rigor of the criminal law. Boston v. Cum- mins. 16 Ga. 102. 60 Am. Dec. 717 ; Cummings v. Missouri, 4 Wall. 277, 18 L. Ed. 356 ; U. S. v. Hall, 2 Wash. C. C. 366, Fed. Cas. No. 15,285; Woart v. Winnick, 3 N. H. 473. 14 Am. Dec. 384: Calder v. Bull, 3 Dali. 390, 1

L. Ed. 648 ; 3 Story, Const. 212.

An ea post facto law is one which renders an act punishable, in a manner in which it was not punishable when committed. Such a law may inflict penalties on the person, or pecuniary pen- alties which swell the public treasury. The legislature is therefore prohibited from passing a law by which a man’s estate, or any part of

it, shall be seised for a crime, which was not declared, by some previous law, to render him liable to such punishment. Fletcher v. Peck, 6 Cranch, 87. 138, 3 L. Ed. 162.

The plain and obvious meaning of this pro- hibition is that the legislature shall not pass any law, after a fact done by any citizen, which shall have relntion to that fact, so as to pun- ish that which was innocent when done ; or to add to the punishment of that which was criminal; or to increase the malignity of a crime ; or to retrench the rules of evidence, so as to make conviction more easy. This definition of an ex post facto law is sanctioned by long usage. Strong v. State, 1 Black! (lnd.) 196.

The term "ex post facto law,” in the United States constitution, cannot be construed to in- clude and to prohibit the enacting any law aft- er a fact, nor even to prohibit the depriving a citizen of a vested right to property. Calder v. Bull, 3 Dali. 386, 1 L. Ed. 648.

"Ex post facto" and "retrospective” are not convertible terms; The latter is a term of wid- er signification than the former and includes it. Ail ex post facto laws are necessarily retro- spective, but not e converso. A curative or confirmatory statute is retrospective, but not ea post facto. Constitutions of nearly all the states contain prohibitions against ex post facto laws, but only a few forbid retrospective legis- lation in specific terms. Black, Const. Probib. IS 170, 172, 222.

Retrospective laws divesting vested rights are impolitic and unjust; but they are not "ea post facto laws,” within the . meaning of the constitution of the United States, nor repugnant to any other of its provisions; and, If not re- pugnant to the state constitution, a court can- not pronounce them to be void, merely because in their judgment they are contrary to the. prin- ciples of natural justice. Albee v. May, 2 Paine, 74. Fed. Cas. No. 134.

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Every retrospective act is not necessarily an ex post facto law. That phrase embraces only such laws as impose or affect penalties or for- feitures. Locke v. New Orleans, 4 Wall. 172, 18 L. Ed. 834.

Retrospective laws which do not impair the obligation of contracts, or affect vested rights, or partake of the character of ea post facto laws, are not prohibited by the constitution. Bay v. Gage, 36 Barb. (N. X.) 447.

Ex prsecedentibns et oonseqnentibus optima At interpretatio. 1 Roll. 374. The best Interpretation is made from the context

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Calder v. Bull, 3 U.S. (3 Dall.) 386 (1798)]**

The Constitution's narrower meaning of 'ex post facto' — criminal laws only, in four classes — was fixed by Justice Chase in Calder v. Bull: every law that makes criminal an innocent act, aggravates a crime, increases punishment, or alters legal rules of evidence to convict.

Why: The entry cites the constitutional prohibition and promises the narrower construction; Calder is the canonical authority supplying it. Real case, directly the authority the entry's 'extracts' point to.

## EX PRJECOGITATA MALICIA.

Of

malice aforethought. Reg. Orig. 102.

5e apparatus — Not carried into the 5th edition (1979).

## EX PROPRIO MOTH.

Of his own ac- cord.

5e apparatus — Not carried into the 5th edition (1979).

## EX PROPRIO VIGORS.

By their or its own force. 2 Rent Comm. 457.

5e apparatus — Not carried into the 5th edition (1979).

## EX PROVISIONS HOMINIS.

By the

provision of man. By the limitation 6t the party, as distinguished from the disposition of the law. 11 Coke, 806.

5e apparatus — Not carried into the 5th edition (1979).

## EX PROVISIONS MARITI.

From the provision of the husband.

5e apparatus — Not carried into the 5th edition (1979).

## EX QUASI CONTRACTU.

From quasi contract Fleta, lib. 2, c. 60.

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5e apparatus — Not carried into the 5th edition (1979).

## EX RELATIONE.

Upon relation or in- formation. Legal proceedings which are in- stituted by the attorney general <or other proper person) in the name and behalf of the state, but on the information and at the in- stigation of an individual who has a private Interest in the matter, are said to be taken "on the relation" (ex relatione ) of such per- son, who is called the "relator." Such a cause is usually entitled thus: "State ex rel. Doe v. Roe."

In the books of reports, when a base is said

to be reported ex relatione. It Is meant that the reporter derives his account of It, not from personal knowledge, but from the rela- tion or narrative of some person who was present at the argument.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: False Claims Act qui tam provisions, 31 U.S.C. §§ 3729–3733]**

The relator proceeding — a private person instigating suit in the sovereign's name ('State ex rel. Doe v. Roe') — survives in federal law as the qui tam action, in which a private relator sues on behalf of the United States.

Why: Real statute codifying the modern form of the relator device the entry defines: the private relator suing in the government's name. Genuine doctrinal descendant, not forced.

## EX BIGORE JURIS.

According to the rigor or strictness of law; in strictness of law. Fleta, lib. 3, c. 10, § 3.

5e apparatus — Not carried into the 5th edition (1979).

## EX SCRIPTIS OHM VISIS.

From writings formerly seen. A term used as de- scriptive of that kind of proof of handwriting where the knowledge has been acquired by the witness having seen letters or other doc- uments professing to be the handwriting of the party, and having afterwards communi- cated personally with the party upon the con- tents of those letters or documents, or hav- ing otherwise acted upon them by written answers, producing further correspondence or acquiescence by the party In some matter to which they relate, or by the witness trans- acting with the party some business to which ■they relate, or by any other mode of commu- nication between the party and the witness which, In the ordinary course of the trans- actions of life, induces a reasonable presump- tion that the letters or documents were the handwriting of the party. 5 Adol. & E. 730.

5e apparatus — Not carried into the 5th edition (1979).

## EX STATDTO.

According to the statute. Fleta, lib. 6, e. 11, g 1.

5e apparatus — Not carried into the 5th edition (1979).

## EX STIPULATE ACTIO.

In the civil law. An action of stipulation. An action given to recover marriage portions. Inst. 4, ft, 29.

5e apparatus — Not carried into the 5th edition (1979).

## EX TEMPORE.

From or in consequence of time; by lapse of time. Bract, fols. 51, 52. Ex diutumo tempore, from length of time. Id. fol. 516.

Without preparation or premeditation.

5e apparatus — Not carried into the 5th edition (1979).

## EX TESTAMENTO.

From, by, or un- der a will. The opposite of o6 intestato, »•)

Ex tota materia emergat reaolntio.

The explanation should arise out of the whole subject-matter; the exposition of a statute should be made from all Its parts together. Wing. Max. 23ft

Ex turpi eauaa bob oritur aetio. Out of

a base [illegal, or immoral] consideration, an action does [can] not arise. 1 Selw. N.

P. 63; Broom, Max. 730, 732; Story, Ag. g 195.

Ez turpi ooutractu aetio bob oritur.

From an immoral or Iniquitous contract an action does not arise. A contract founded upon an Illegal or Immoral consideration can- not be enforced by action. 2 Kent, Comm. 406: Dig. 2, 14, 27, 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: 'From, by, or under a will' — the verses state the testament's legal nature: it takes force only upon the testator's death. The definition of the instrument itself. Epistle, not deity speech — no red-letter flag.

## EX UNA PARTE.

Of one part or side; on one side.

Ex uao discos omaes. From one thing you can discern all.

5e apparatus — Not carried into the 5th edition (1979).

## EX ETRAQEE PARTE.

On both sides. Dyer, 1266.

5e apparatus — Not carried into the 5th edition (1979).

## EX ETRISQEE PARENTIBUB CON- / JUNCTI.

Related on the side of both par- ents; of the whole blood. Hale, Com. Law, a 11.

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5e apparatus — Not carried into the 5th edition (1979).

## EX VT TERMINI.

From or by the force of the term. From the very meaning of the expression used. 2 Bl. Comm. 109, 115.

5e apparatus — Not carried into the 5th edition (1979).

## EX VISCERIBES.

From the bowels. From the vital part, the very essence of the thing. 10 Coke, 246; Homer v. Shelton, 2 Meta (Mass.) 213. Ex visceribus verborum, from the mere words and nothing else. 1 Story, Eq. Jur. g 980; Fisher v. Fields, 10 Johns. (N. X.) 495.

5e apparatus — Not carried into the 5th edition (1979).

## EX VISITATIONE DEI.

By the dis- pensation of God ; by reason of physical In- capacity. Anciently, when a prisoner, being arraigned, stood silent instead of pleading, a jury was Impaneled to Inquire whether he obstinately stood mute or was dumb ex visi- tatione Dei. 4 Steph. Comm. 394.

Also by natural, as distinguished from vio- lent, causes. When a coroner’s inquest finds that the death was due to disease or other natural cause, it Is frequently phrased "ex vUitatione Dei.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 4:11, KJV]**

And the LORD said unto him, Who hath made man's mouth? or who maketh the dumb, or deaf, or the seeing, or the blind? have not I the LORD?

Why: 'By the dispensation of God; by reason of physical incapacity' — anciently the jury inquired whether the mute prisoner was dumb ex visitatione Dei; the verse is God claiming authorship of dumbness and deafness. Genuin...

## EX VISE SCRIPTIONIS.

From sight of the writing; from having seen a person write. A term employed to describe one of the modes of proof of handwriting. Best, Pres. 218.

5e apparatus — Not carried into the 5th edition (1979).

## EX VOLUNTATE.

Voluntarily; from free-will or choice.

5e apparatus — Not carried into the 5th edition (1979).

## EXACTION.

The wrongful act of an of- ficer or other person In compelling payment of a fee or reward for his services, under color of his official authority, where no pay- ment is due.

Between “extortion” and "exaction" there is this difference: that in the former case the offi- cer extorts more than his due, when something is due to him ; in the latter, he exacts what is not his due, when there is nothing due to him. Co. Litt 368.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Hobbs Act, 18 U.S.C. § 1951 — extortion under color of official right]**

The officer's wrongful taking 'under color of his official authority' that the entry defines is now the federal offense of extortion under color of official right.

Why: Real statute, the modern federal form of the official-right taking the entry defines and distinguishes from extortion at common law. Direct counterpart, not a restatement.

**[Scripture] — Scripture**

**[Luke 3:13, KJV]**

And he said unto them, Exact no more than that which is appointed you.

Why: The officer's wrongful compelling of payment under color of authority — the verse is the Baptist's charge to the publicans (the exacting officers): exact no more than appointed. The offense and its limit in one senten...

## EXACTOR.

In the civil law. A gath- erer or receiver of money ; a collector of taxes. Cod. 10, 19.

la old English law. A collector of the public moneys; a tax gatherer. Thus, ex- actor regie was the name of the king’s tax collector, who took up the taxes and other debts due the treasury.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The collector of taxes, the king's tax-gatherer — the verse establishes the tax obligation itself, the ground of the exactor's office. Jesus' direct speech — deity verbatim speech.

## EXALTARE.

In old English law. To raise ; to elevate. Frequently spoken of wa- ter, i. e., to raise the surface of a pond or pool.

5e apparatus — Not carried into the 5th edition (1979).

## EXAMEN.

L. Lat. A trial. Etoamen oomputi, the balance of an account Townsh. PL 223.

5e apparatus — Not carried into the 5th edition (1979).

## EXAMINATION.

An Investigation ; search ; interrogating.

In trial practice. The examination of a witness consists of the series of questions put to him by a pasty to the action, or his coun- sel, for the purpose of bringing before the court and Jury in legal form the knowledge which the witness has of the facts and mat- ters in dispute, or of probing and sifting his evidence previously given. ■

In criminal practice. An investigation by a magistrate of a person who has been charged with crime and arrested, or of the facts and circumstances which are alleged to have attended the crime and to fasten sus- picion upon the party so charged, in order to

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ascertain whether there is sufficient ground to hold him to bail for his trial by the proper court. U. S. v. Stanton, 70 Fed. 890, 17 C. C.

A. 475 ; State v. Conrad, 95 N. C. 669.

— Cross-examination. In practice. The ex- amination of a witness upon a trial or bearing, or upon taking a deposition, by the party op- posed to the one who produced him, upon his evidence given in chief, to test its truth, to fur- ther develop it, or for other purposes. — Direct examination. In practice. The first inter- rogation or examination of a witness, on the merits, by the party on whose behalf he is call- ed. This is to be distinguished from an ex- amination in pai», or on the voir dire, which is merely preliminary, and is had when the compe- . tency of the witness is challenged ; from the cross-examination, which is conducted by the adverse party ; and from the redirect examina- tion which follows the cross-examination, and is had by the party who first examined the wit- ness.—Examination de 110110 esse. A provi- sional examinaticn of a witness ; an examina- tion of a witness whose testimony is important and might otherwise be lost, held out of court and before the trial, with the proviso that the deposition so taken may be used on the trial in case the witness is unable to attend in per- son at that time or cannot be produced.— Ex- amination of a long account. This phrase does not mean the examination of the account to ascertain the result or effect of it, but the proof by testimony of the correctness of the items composing it. Magown v. Sinclair, 5 Daly (N. Y.) 63.— Examination of bankrupt. This is the interrogation of a bankrupt, in the course of proceedings in bankruptcy, touching the state of his property. This is authorized in the United States by Rev. St. § 5086; and sec- tion 5087 authorizes the examination of a bank- rupt's wife.— Examination of invention. An inquiry made at the patent-office, upon ap- plication for a patent, into the novelty and util- ity of the alleged invention, and as to its in- terfering with any other patented invention. Rev. St. U. S. S 4893 (U. S. Comp. St. 1901, p. 3384).— Examination of title. An inves- tigation made by or for a person who intends to purchase real estate, in the offices where the public records are kept, to ascertain the his- tory and present condition of the title to such land, and its »tatu» with reference to liens, in- cumbrances, clouds, etc.— Examination of wife. See Pbivate Examination, infra.— Ex- amination pro InterBase suo. When a per- son claims to be entitled to an estate or other property sequestered, whether by mortgage, judgment, lease, or otherwise, or has a title paramount to the sequestration, he should apply

to the court to direct an inquiry whether the applicant has any, and what, interest in the property ; and this inquiry is called an “ex- amination pro interesse suo." Krippendorf v. Hyde, 110 U. S. 276, 4 Sup. Ct. 27, 28 L. Ed. 145 ; Hitz v. Jenks, 185 (J. S. 155, 22 Sup. Ct. 598, 46 L. Ed. 851.— Preliminary' ex- amination. The examination of a person charged with crime, before a magistrate, as above explained. See In re Dolph, 17 Colo. 35, 28 Pac. 470 ; Van Buren v. State, 65 Neb. 223, 91 N. W. 201.— Private examination. An examination or interrogation, by a magistrate, of a married woman who is grantor in a deed or other conveyance, held out of the presence of her husband, for the purpose of ascertaining whether her will in the matter is free and un- constrained. Muir v. Galloway, 61 Cal. 506 {

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Hadley v. Geiger, 9 N. J. Law, 233. — Re-ex- amination. An examination of a witness aft- er a cross-examination, upon matters arising out of such cross-examination.— Separate ex- amination. The interrogation' of a married woman, who appears before an officer for the purpose of acknowledging a deed or other in- strument, conducted by such officer in private or out of the hearing of her husband, in order to ascertain if she acts of her own will and without compulsion or constraint of the hus- band. Also the examination of & witness in prU vate or apart from, and out of the hearing of, the other witnesses in the same caose.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:18, KJV]**

And the judges shall make diligent inquisition: and, behold, if the witness be a false witness, and hath testified falsely against his brother;

Why: The examination/interrogation of witnesses in trial practice — the verse commands the judges' diligent inquisition of the witness, including the false-witness test. Genuinely the examination function. Moses expounding…

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "The unexamined life is not worth living" — Socrates, Apology 38a]**

"The unexamined life is not worth living."

Why: Classical maxim, standard English rendering of Apology 38a (translation noted). The foundational Western statement on examination as a practice — here turned inward. The entry's trial-practice sense (questioning to br…

## EXAMINED COPT.

A copy of a record, public book, or register, and which has been compared with the original. 1 Campb. 469.

5e apparatus — Not carried into the 5th edition (1979).

## EXAMINER.

In English law. A - per- son appointed by a court to take' the exami- nation of witnesses in an action, i. e., to take down the result of their interrogation by the parties or their counsel, either by written In- terrogatories or vivd voce. An examiner Is generally appointed where a witness Is In a foreign country, or Is too ill or Infirm to at- tend before the court, and Is either an officer of the court, or a person specially appointed for the purpose. Sweet

la New Jersey. An examiner is an officer appointed by the court of chancery to take testimony in causes depending in that court His powers are similar to those of the Eng- lish examiner in chancery.

In the patent-office. An officer in the patent-office charged with the duty of exam- ining the patentability of inventions for which patents are asked.

—Examiner in chancery. An officer of the court of chancery, before whom witnesses are examined, and their testimony reduced to writ- ing, for the purpose of being read on the hear- ing of the cause. Cowell.— .Examiners. Per- sons appointed to question students of law in order to ascertain their qualifications before they are admitted to practice.— Special ex- aminer. In English law. Some person, not one of the examiners of the court of chancery,

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appointed to take evidence in a particular suit. This may be done when the state of business in the examiner’s office is such that it ia im- possible to obtain an appointment at a con- veniently early day, or when tbe witpesses may be unable to come to London. Hunt. Eq. pt. I. c. 5, * 2.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 19:18, KJV]**

And the judges shall make diligent inquisition: and, behold, if the witness be a false witness, and hath testified falsely against his brother;

Why: The officer appointed to take the examination of witnesses — same genuine link as EXAMINATION; the verse describes the diligent judicial examination the office exists to perform. Moses expounding — no red-letter flag.

## EXANNUAX ROLL.

In old English practice. A roll Into which (in the old way

. EXCAMB

of exhibiting sheriffs’ accounts) the Illevla- ble fines and desperate debts were transcrib- ed, and which was annually read to the sher- iff upon his accounting, to see what might be gotten. Cowell.

EXCAMB, In Scotch law. To exchange. 6 Bell, App. Cas. 19, 22.

5e apparatus — Not carried into the 5th edition (1979).

## EXGAMBIATOR.

An exchanger of lands; a broker. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## EXCAMBION.

in Scotch law. Ex- change. 1 Forb. Inst pt 2, p. 173.

5e apparatus — Not carried into the 5th edition (1979).

## EXCAMBIGM.

An exchange; a place where merchants meet to transact their busi- ness; also an equivalent in recompense; a recompense in lieu of dower ad ostium eccle- tia.

EXCELLENCY, In English law. The

title of a viceroy, governor general, ambas- sador, or commander in chief.

In Ameriea. The title is sometimes given to the chief executive of a state or of the nation.

5e apparatus — Not carried into the 5th edition (1979).

## EXCEPTANT.

One who excepts; one who makes or files exceptions; one who ob- jects to a ruling, instruction, or anything proposed or ordered.

5e apparatus — Not carried into the 5th edition (1979).

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## EXCEPTIO.

In Roman law. An ex- ception. In a general sense, a judicial alle- gation opposed by a defendant to the plain- tiff’s action. Calvin.

A stop or stay to an action opposed by the defendant. Cowell.

Answering to the “defense” or “plea" of the common luw. An allegation and defense of a defendant by which the plaintiff’s claim or complaint is defeated, either according to strict law or upon grounds of equity.

In a stricter sense, the exclusion of an ac- tion that lay in strict law, on grounds of equity, (aotionis jure stricto competently oft <e quitatem exc lusio.) Helnecc. A kind of limitation of an action, by which it was shown that the action, though otherwise just, did not lie in the particular case. Calvin. A species of defense allowed in cases whore, though the action as brought by the plaintiff was in itself just, yet it was unjust as against the particular party sued. Inst 4, 13, pr.

In modern civil law. A plea by which the defendant admits the cause of action, but alleges new facts which, provided they be true, totally or partially answer the allega- tions put forward on the other side ; thus dis- tinguished from a mere traverse of the plain- tiff’s averments. Tomkins & J. Mod. Bom. Law, 00. ( In this use, the term corresponds to the common-law plea in confession and avoidance.

— Exceptio dilatoria. A dilatory exception ; called bAso" temporalis," (temporary ;) one which defeated the action for a time, (qua ad tempos

EXCEPTIO

nocet ,) and created delay, (et temporis dilation - em tribuit ;) such as an agreement not to su^ within a certain time, as five years. Inst. 4, 13, 10. See Dig. 44, 1, 3.— Exceptio doll mall. An exception or plea of fraud. Inst. 4, 13, 1, 9; Bract, fol. 1006. — Exceptio dom- minll. A claim of ownership set up in an ac- tion for the recovery of property not in the possession of the plaintiff. Mackeld. Rom. Law, | 299. — Exceptio dotia eautae non nnmera- tse. A defense to an action for the restitution of a dowry that it was n^ter paid, though promised, available upon the dissolution of the marriage within a limited time. Mackeld. Bom. Law, | 458. — Exceptio in factum. An ex- ception on the fact. An exception or plea found- ed on the peculiar circumstances of the case. Inst. 4, 13, 1.— Exceptio In personam. A plea or defense of a personal nature, which may be alleged only by the person himself to whom it is granted by the law. Mackeld. Bom. Law, { 217.— Exceptio la rem. A plea or defense not of a personal nature, but connected with the legal circumstances on which the suit is founded, and which may therefore be alleged by any party in interest, including the heirs and sureties of the proper or original debtor. Mackeld. Bom. Law, $ 217.— Exceptio juris- jurundi. An exception of oath ; an excep- tion or plea that the matter had been sworn to. Inst. 4, 13, 4. This kind of exception was al- lowed where a debtor, at the instance of his creditor, (creditors dcfercnte,) had sworn that nothing was due the latter, and had notwith- standing been sued by him.— Exceptio metns. An exception or plea of fear or compulsion. Inst. 4, 13, 1, 9; Bract, fol. 1006. Answering to the modern plea of duress.— Exceptio non

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adlmpleti contractus. An exception in an action founded on a contract involving mutual duties or obligations, to the effect that the plaintiff is not entitled to sue because he has not performed his own part of the agreement. Mackeld. Bom. Law, { 394.— Exceptio non solutse pecuniae. A plea that the debt in suit was not discharged by payment (as alleged by the adverse party) notwithstanding an ac- quittance or receipt given by the person tp whom the payment is stated to have been made. Mackeld. Rom. Law, S 534.— Exceptio pact! oonventi. An exception of compact; an ex- ception or plea that the plaintiff had agreed not to sue. Inst 4, 13, 3.— Exceptio pecunlm non numeratse. An exception or plea of money not paid ; a defense which might be set up by a party who was sued on a promise to repay money which he had never received. Inst 4, 13, 2.— Exceptio peremptoria. A peremp- tory exception ; called also "perpetua, (per- petual;) one which forever destroyed the sub- ject-matter or ground of the action, (qua sem- per rem de qua agitur perimit;) suen as the exceptio doli mali, the exceptio metus, etc. Inst 4, 13, 9. See Dig. 44, 1, 3.— Exceptio rei judieatse. An exception or plea of matter adjudged ; a plea that the subject-matter of the action had been determined in a previous action. Inst. 4, 13, 5. This term is adopted by Bracton, and is constantly used in modern law to denote a defense founded upon a pre- vious adjudication of the same matter. Bract fols. 1006, 177 ; 2 Kent, Comm. 120. A plea of a former recovery or judgment.— Exceptio rei venditse et traditse. An exception or plea of the sale and delivery of the thing. This exception presumes that there was a valid sale and a proper tradition ; but though, in conse- quence of the rule that no one can transfer to another a greater right than he himself has, no property was transferred, yet because of some particular circumstance the real owner is estopped from contesting it. Mackeld. Bom. Law, i 299.— Exoeptio aenatnsconanltl Mac- edonian!. A defense to an action for the re- covery of money loaned, on the ground that the loan was made to a minor or person under the

Saternal power of another; so named from the ecree of the senate which forbade the recovery of such loans. Mackeld. Horn. Law, | 432.— Exceptio senatxsconsnlti Velleianl. A de- fense to an action on a contract of suretyship, on the ground that the surety was a woman and therefore incapable of becoming bound for an- other ; so named from the decree of the senate forbidding it. Mackeld. Itom. raw, § 453. — Ei- ceptio temporis. An exception or plea anal- ogous to that of the statute of limitations in our law ; viz., that the time prescribed by law for bringing such actions has expired, Mackeld. Rom. Law, f 213.

Exceptio ejus ret coins petitnr diisolntio nulla est. A plea of that matter the dissolution of which is sought [by the ac- tion] is null, [or of no effect.] Jenk. Cent 37, case 71.

Exceptio falsi omnium ultima. A plea

denying a fact is the last of all.

Exceptio nulla est versus actionem tsa exoeptionem perimit. There is [can be]

no plea against an action which destroys [the matter of] the plea. Jenk. Cent 106, case 2.

Exceptio probat regulars. The excep- tion proves the rule. 11 Coke, 41; 3 Term, 722. Sometimes quoted with the addition “do rebus non exceptia," (“so far as con- cerns the

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mutters hot excepted.”)

Exceptio qnse flrmat legem, exponit legem. An exception which confirms the law explains the law. 2 Bulst. 189.

Exceptio semper ultimo ponemda est.

An exception should always be put last. 9 Coke, 53.

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## EXCEPTION.

In practice. A formal objection to the action of the court, during the trial of a cause, in refusing a request or overruling an objection; implying that the party excepting does not acquiesce in the de- cision of the court, but will seek to procure its reversal, and that he means to save the benefit of his request or objection in some future proceeding. Snelllng v. Tetter, 25 App. Div. 590, 49 N. Y. Supp. 917; People ▼. Torres, 38 Cal. 142; Norton v. Livingston, 14 8. C. 178 ; Kline v. Wynne, 10 Ohio St. 228.

It is also somewhat used to signify other objections in the course of a suit; for ex- ample, exception to bail is a formal objection that special bail offered by defendant are in- sufficient. 1 Tidd, Pr. 255.

An exception is an objection upon a matter of law to a decision made, either before or after judgment, by a court, tribunal, judge, or other judicial officer, in an action or pro- reeding. The exception must be taken at the time the decision is made. Code Civ. Proc. Cal. | 640.

In admiralty and equity practice. An

exception is a formal allegation tendered by a party that some previous pleading or proceeding taken by the adverse party is insuf- ficient Peck v. Osteen, 37 Fla. 427, 20 South. 649; Arnold v. Slaughter, 36 W. Va. 589, 15

S. E. 250.

Ia statutory law. An exception in a statute is a clause designed to reserve or ex- empt some Individuals from the general class of persons or things to which the language of the act in general attaches.

An exception differs from an explanation, which, by the use of a videlicet, proviso, etc., is allowed only to explain doubtful clauses prece- dent, or to separate and distribute generals into particulars. Cutler v. Tufts, 3 Pick. (Mass.)

Ia contracts. A clause in a deed or other conveyance by which the grantor excepts something out of that which he granted be- fore by the deed. Morrison v. Bank, 88 Me. 155, 33 Atl. 782; Gould v. Glass, 19 Barb. (N. Y.) 192; Coal Creek Min. Co. v. Heck, 83 Tenn. 497; Winston v. Johnson, 42 Minn. 398, 45 N. W. 958; Bryan v. Bradley, 16 Conn. 482; Rich v. Zeilsdorff, 22 Wis. 547, 99 Am. Dec. 81.

The distinction between an exception and a reservation is that an exception is always of part of the thing granted, and of a thing in esse; a reservation is always of a thing not in esse, but newly created or reserved out of the land or tenement demised. Co. Lift. 47a; 4

Kent, Comm. 468. It has been also said that there is a diversity between an exception and a saving, for an exception exempts clearly, bnt a saving goes to the matters touched, and does not exempt. Plowd. 361.

In the civil law. An exceptio or plea. Used in this sense in Louisiana.

Declinatory exceptions are such dilatory exceptions as merely decline the jurisdiction of the judge before whom the action is brought Code Proc. La. 334.

Dilatory exceptions are such as do not tend to defeat the action, bnt only to retard its progress.

Peremptory exceptions are those which tend to the dismissal of the action.

—Exception to hail. An objection to the special bail pnt in by the defendant to an ac- tion at law made by the plaintiff on grounds of the insufficiency of the bail. 1 Tidd, Pr. 255.

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## EXCEPTIS  EXCIPIENDIS.

Lat. With all necessary exceptions.

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## EXCEPTOR.

In old Etiglish law. A party who entered an exception or plea.

EXCERPTA, or EXCERPTS. Extracts.

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## EXCESS.

When a defendant pleaded to an action of assault that the plaintiff tres- passed on his land, and he would not depart when ordered, whereupon he, mollitcr tnanus imposuit, gently laid hands on him, the rep- lication of excess was to the effect that the defendant used more force than necessary. Wharton.

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Mēden agan — "Nothing in excess" (Delphic maxim)]**

Mēden agan — "Nothing in excess."

Why: Genuine Delphic maxim; the moral root of the legal doctrine. The entry defines excess as using 'more force than necessary' — precisely 'too much.' Zero invention risk.

## EXCESSIVE.

Tending to or marked by excess, which is the quality or state of exseeding the proper or reasonable limit or measure. Railway Co. v. Johnston, 106 Ga. 130, 32 S. E. 78.

— Excel live bail. Bail in a sum more than will be reasonably sufficient to prevent evasion of the law by flight or concealment ; bail which is per se unreasonably great and clearly dis- proportionate to the offense involved, or shown to be so py the special circumstances of the particular case. In re Losasso, 15 Colo. 163, 24 Pac. 1080, 10 L. R. A. 847 ; Ex parte Ryan,

44 Cal. 558; Ex parte Duncan, 53 Cal. 410; Blydenburgh v. Miles, 39 Conn. 490. — Excessive damages. See Damages.

Excel si vnm in jure reprohstnr. Ex* oesans In re qualibet Jure reprohatur

Co. Lltt. 44. Excess in law is reprehended. Excess in anything is repre- hended at common law.

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — Excessive Bail Clause]**

The 'excessive bail' the entry defines at length is constitutionally barred: 'Excessive bail shall not be required.'

Why: Real constitutional provision, verbatim clause, the source of the doctrine the entry defines. Genuine root, not restatement.

## EXCHANGE.

In conveyancing. A

mutual grant of equal interests, (in lands or tenements,) the one in consideration of the other. 2 Bl. Comm. 323; Windsor v. Collin- son, 32 Or. 297, 52 Pac. 26; Gamble v. Mc- Clure, 69 Pa. 282; Hartwell v. De Vault, 159 111. 325, 42 N. E. 789 ; Dong v. Fuller, 21 Wis. 121. In the United States, it appears, ex- change does not differ from bargain and sale. See 2 Bout. Inst 2055.

In commercial law. A negotiation by which one person transfers to another funds Which he has in a certain place, either at a price agreed upon or which is fixed by com- mercial usage. Nicely v. Bank, 15 iDd. App. 563, 44 N. E. 572, 57 Am. St Rep. 245; Smith v. Kendall, 9 Mich. 241, 80 Am. Dec. 83.

' The profit which arises from a maritime loan, when such profit Is a percentage on the money lent, considering it in the light of money lent in one place to be returned in another, with a difference in amount in the sum borrowed and that paid, arising from the difference of time and place. The term is commonly used in this sense by French writ- ers. Hall, Emerig. Mar. Loans, 56n.

A public place where merchants, brokers, factors, etc., meet to transact their business.

In law of personal property. Exchange of goods is a commutation, transmutation, or transfer of goods for other goods, as dis- tinguished from sole, which is a transfer of goods for money. 2 Bl. Comm. 446; 2 Steph. Comm. 120; Elwell v. Chamberlin, 31 N. V. 624; Cooper v. State, 37 Ark. 418; Preston v. Keene, 14 Pet. 137, 10 L. Eld. 387.

Exchange is a contract by which the par- ties mutually give, or agree to give, one thing for another, neither thing, or both things, being money only. Civ. Code Cal. 8 1804; Civ. Code Dak. 8 1029; Civ. Code La. art 2660.

The distinction between a Rale and exchange of property is rather one of shadow than of substance. In both cases the title to property ia absolutely transferred ; and the same rules •of law are applicable to the transaction, wheth- er the consideration of the contract is

money or by way of barter. It can make no essential

difference in the rights and obligations of par- ties that goods and merchandise are transferred and paid for by other goods and merchandise instead of by money, which is but the repre- sentative of value or property. Com. v. Clark, 14 Gray (Mass.) 367.

— Arbitration of exchange. The business of buying and selling exchange (bills of ex- change) between two or more countries or mar- kets, and particularly where the profits of such business are to be derived from a calculation of the relative value of exchange in the two countries or markets, and by taking advantage of the fact that the rate of exchange may be higher in the one place than in the other at the same time. — Dry exchange. In English law. A term formerly in use. said to have been in- vented for the purpose of disguising and cover- ing usury ; something being pretended to pass on both sides, whereas, in truth, nothing passed but on one side, in which respect it was called “dry.” Cowell ; Blount.— Exchange, bill of. See Bill of Exchange. — Exchange broker. One who negotiates bills of exchange drawn on foreign countries or on other places in the same country ; one who makes and concludes bargains for others in matters of money or mer- chandise. Little Rock v. Barton, 33 Ark. 444 ; Portland v. O’Neill, 1 Or. 219.— Exchange of livings. In ecclesiastical law. This is ef- fected by resigning them into the bishop’s hands, and each party being inducted into the other’s benefice. If either die before both are induct- ed, the exchange is void.— Firs* of exchange, Seoond of exchange. See Fibst.— Owelty of exchange. See Owelty.

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**[Scripture] — Scripture**

**[Ruth 4:7, KJV]**

Now this was the manner in former time in Israel concerning redeeming and concerning changing, for to confirm all things; a man plucked off his shoe, and gave it to his neighbour: and this was a testimony in Israel.

Why: The mutual grant confirming a transaction — the verse describes the symbolic exchange (shoe-plucking) that confirmed redeeming and changing in Israel. Borderline, kept: genuinely the exchange formality. Narrator, not…

## EXCHEQUER.

That department of the English government which has charge of the collection of the national revenue ; the treasury department.

It is said to have been so named from the chequered cloth, resembling a chess-board, which anciently covered the table there, and on which, when certain of the king’a accounts were made up, the suras were marked and scored with counters. 3 Bl. Comm. 44.

— Exchequer bills. Bills of credit issued in England by authority of parliament. Brande. Instruments issued at the exchequer, under the authority, for the most part, of acts of parlia- ment passed for the purpose, and containing an engagement on the part of the government for repayment of the principal sums advanced with interest. 2 Steph. Comm. 586. See Briscoe v. Bank of Kentucky, 11 Pet. 328, 9 L. Ed. 709. —Court of exchequer, Court of exohequer chamber. See those titles.— Exchequer di- vision. A division of the English

high court of justice, to which the special business of the court of exchequer was specially assigned by section 34 of the judicature act of 1873. Merged in the queen’s bench division from and after 1881. by order in council under section 31 of that act. Wharton.

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## EXCISE.

An inland imposition, paid sometimes upon the consumption of the com- modity, and frequently upon the retail sale. 1 Bl. Comm. 318; Story, Const. 8 950 ; Scholey v. Rew, 23 Wall. 346, 23 L. Ed. 99; Patton v. Brady, 184 U. S. 608, 22 Sup. Ct 493, 46

L. Ed. 713; Portland Bank v. Apthorp, 12 Mass. 256; Union Bank v. Hill, 3 Cold. (Tenn.) 328.

The words "tax” and "excise,” although often used as synonymous, are to be considered as having entirely distinct and separate significa- tions, under Const. Mass. c. 1, f 1, art. 4. The former is a charge apportioned either among

Excusable

the whole people of the state or those residing within certain districts, municipalities, or sec- tions. It is required to be imposed, so that, if levied for the public charges of government, it shall be shared according to the estate, real and personal, which each person may possess; or, if raised to defray the cost of some local im- provement of a public nature, it shall be borne by those who will receive some special and peculiar benefit or advantage which an- expendi- ture of money for a public object may cause to those on whom the tax is assessed. An excise, on the other hand, is of a different character. It is based on no rule of apportionment or equal- ity whatever. It is a fixed, absolute, and di- rect charge laid on merchandise, products, or commodities, without any regard to the amount of property belonging to those on whom it may fall, or to any supposed relation between money expended for a public object and a special ben- efit occasioned to those by whom the charge is to be paid. Oliver v. Washington Mills, 11 Allen (Mass.) 288.

The term Is also extended to the Imposi- tion of public charges, in the nature of taxes, upon other subjects than the manufacture and sale of commodities, such as licenses to pursue particular callings, the franchises of corporations and particularly the franchise of corporate existence, and the inheritance or succession of estates. Pollock v. Farmers’ L. & T. Co., 158 U. S. 601, 15 Sup. Ct. 912, 39

L. Ed. 1108; Scholey v. Rew, 23 Wall. 346, 23 lx Ed. 99; Hancock v. Singer Mfg. Co., 62 N. J. Law, 289, 41 AO. 846, 42 L. R. A. 852.

In English law. The name given to the duties or taxes laid on certain articles pro- duced and consumed at home, among which spirits have always been the most important; but, exclusive of these, the duties on the licenses of auctioneers, brewers, etc., and on the licenses to keep dogs, kill game, etc., are' Included in the excise duties. Wharton.

— Excise law. A law imposing excise duties on specified commodities, and providing for the collection of revenue therefrom. In a more restricted and more popular sense, a law regu- lating, restricting, or taxing the manufacture or sale of intoxicating liquors.

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The inland tax on consumption and sale — the verse states the duty to render the tax, the ground of all such impositions; same genuine link as EXACTOR, each entry judged on its own. Jesus' direct speech — deity verbat...

## EXCLUSA.

In old English law. A sluice to carry off water; the payment to the lord for the benefit of such a sluice. Cowell.

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## EXCLUSIVE.

Shutting out; debarring from interference or participation ; vested in one person alone. An exclusive right is one which only the grantee thereof can exercise, and from which all others are prohibited or shut out A statute does not grant an “ex- clusive” privilege or franchise, unless it shuts out or excludes others from enjoying a simi- lar privilege or franchise. In re Union Fer- ry Co., 98 N. T. 151.

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## EXGOMMEN CEMENT.

Excommunica- tion, ( q . v .) Co. Litt. 134a.

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## EXCOMMUNICATION.

A sentence of censure pronounced by one of the spiritual Courts for offenses falling under ecclesias- tical cognizance. It is described in the books

as twofold: (1) The lesser excommunication, which is an ecclesiastical censure, excluding - the party from the sacraments; (2) the great- er, which excludes him from the company of all Christians. Formerly, too, an excommu- nicated man was under various civil disabil- ities. He could not serve upon Juries, or be ' a witness in any court ; neither could he bring an action to recover lands or money due to him. These penalties are abolished by St. 53 Geo. IIL C. 127. 3 Steph. Comm. 721.

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**[Scripture] — Scripture**

**[Matthew 18:17, KJV]**

And if he shall neglect to hear them, tell it unto the church: but if he neglect to hear the church, let him be unto thee as an heathen man and a publican.

Why: The sentence of ecclesiastical censure — the verse is the church-discipline procedure culminating in exclusion, the scriptural root of excommunication. Jesus' direct speech — deity verbatim speech.

## EXCOMMUNICATO CAPIENDO.

In

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ecclesiastical law. A writ issuing out of chancery, founded on a bishop’s certificate that the defendant had been excommunicated, and requiring the sheriff to arrest and Im- prison him, returnable to the king's bench. 4 Bl. Comm. 415; Bac. Abr. “Excommuni- cation,” E.

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## EXCOMMUNICATO DELIBERANDO.

A writ to the sheriff for delivery of an ex- communicated person out of prison, upon certificate from the ordinary of his conform- ity to the ecclesiastical jurisdiction. Fitzh. Nat Brev. 63.

Excommunicato interdict tur omnia ao- tus legitimoa, ita quod agere non potest, nee aliqnem convenire, licet ipse ab aliis possit convenlri. Co. Litt. 133. Every legal act is forbidden an excommunicated person, so that he cannot act, nor sue any person, but he may be sued by others.

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## EXCOMMUNICATO RECAPIENDO.

A writ commanding that persons excommu- nicated, who for their obstinacy had been committed to prison, but were unlawfully set free before they had given caution to obey the authority of the church, should be sought after, retaken, and imprisoned again. Reg.. Orig. 67.

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## EXCULPATION, LETTERS OP.

In:

Scotch law. A warrant granted at the suit of'a prisoner for citing witnesses in his own defense.

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## EXCUSABLE.

Admitting of excuse or palliation. As used in the law, this word im- plies that the act or omission spoken of is on its face unlawful, wrong, or liable to entail loes or disadvantage on the person charge- able, but that the circumstances attending it. were such bb to constitute a legal “excuse" for it, that is, a legal reason for withholding or foregoing the punishment, liability, or dis- advantage which otherwise would follow.

— .Excusable assault. One committed bv ac- cident or misfortune in doing any lawful act by lawful means, with ordinary caution and without any unlawful intent. People v. O’Con- nor, 82 App. Div. 55, 8l N. Y. Supp. 555— Excusable homicide. See Homicide. — Ex- cusable neglect. In practice, and particular- ly with reference to the setting aside of a judg- ment taken against a party through his “excus- able neglect,” this means a failure to taka, the

proper steps at the proper time, not in conse- quence of the party s own carelessness, inat- tention, or willful disregard of the process of the court, but in consequence of some unex- pected or unavoidable hindrance or accident, or reliance on the care and vigilance of his

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coun- sel or on promises made by the adverse party. See 1 Bl. Judgm. | 340.

Exonsat ant extern nat delictum in cap- italibus quod non operatnr idem in oiwilibus. Bac. Max. r. 15. That may excuse or palliate a wrongful act In capital cases which would not have the same effect In civil injuries. See Broom, Max. 324.

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## EXCUSATIO.

In the civil law. An ex- cuse or reason which exempts from some duty or obligation.

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## EXCUSATOR.

In English law. An

excuser.

In old German law, A defendant; he who utterly denies the plaintiff’s claim. Du Cange.

Excusatur quia quod elamenm non op- posuerit, nt si to to tempore litlgii fuit ultra mare quacunque eeeasione. Co.

Litt. 260. He Is excused who does not bring his claim, If, during the whole period In which it ought to have been brought, he has been beyond sea for any reason.

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## EXCUSE.

A reason alleged for doing or not doing a thing. Worcester.

A matter alleged as a reason for relief or exemption from some duty or obligation.

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## EXCUSS.

To seize and detain by law.

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## EXCUSSIO.

In the civil law. A dil- igent prosecution of a remedy against a debt- or; the exhausting of a remedy against a principal debtor, before resorting to his sure- ties. Translated "discussion,” (q. t>.)

In old English law. Rescue or rescous. Spelman.

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## EXEAT.

A permission which a bishop grants to a priest to go out of his diocese; also leave to go out generally.

— He exeat. A writ which forbids the person to whom it is addressed to leave the country, the state, or the jurisdiction of the court; avail- able in some cases to keep a defendant within the reach of the court’s process, where the ends of justice would be frustrated if he

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should escape from the jurisdiction.

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## EXECUTE.

To finish, accomplish, make complete, fulfill. To perform; obey the In- junctions of.

To make ; as to execute a deed, which in- cludes signing, sealing, and delivery.

To perform ; carry out according to its terms ; as to execute a contract.

To fulfill the purpose of ; to obey ; to per- form tbe commands of ; as to execute a writ

A statute Is said to execute a use where it trausmutes the equitable Interest of tbe cestui que use into a legal estate of the same nature, and makes him tenant of tbe land accordingly, In lieu of the feoffee to uses or trustee, whose estate, on tbe other hand, is at the same moment annihilated. 1 Stepb. Comm. 339.

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## EXECUTED.

Completed; carried Into full effect ; already done or performed ; tak- ing effect immediately; now In existence or In possession ; conveying an immediate right or possession. The opposite of executory.

— Executed consideration. A consideration which is wholly past. 1 Pars. Cont. 391. An act done or value given before the making of the agreement.— Executed contract. See Contbact.— Executed estate. See Estate.— Executed fine. The fine tur cognizance de droit, come ceo que il ad de son done; or a fine upon acknowledgment of the right of the cognizee, as that which he has of the gift of the cognizor. Abolished by 3 A 4 Wm. IV. c. 74.

—Executed remainder. See Remainder

Executed sale. One completed by delivery of the property; one where nothing remains to be done by either party to effect a complete trans- fer of the subject-matter of the sale. Fogel v. Brubaker, 122 Pa. 7, 15 Atl. 692; Smith v. Barron County, 44 Wis. 691 ; Foley v. Felrath, 98 Ala. 176. 13 South. 485, 39 Am. St. Rep. 39. —Executed trust. See Trust. — Executed use. See Use. — Executed writ. In practice. A writ carried into effect by the officer to whom it is directed. The term “executed,” applied, to a writ, has been held to mean “used.” Amb. 61.

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## EXEGUTIO.

Eat The doing or follow- ing up of a thing; the doing a thing com- pletely or thoroughly; management or ad- ministration.

In old practice. Execution; the final process in an action.

— Executlo bonorum. In old English law.' Management or administration of goods. Ad eccletiam et ad amicos pertinebit exccutio bono- rum, the execution of the goods shall belong ta the church and to the friends of the deceased. Bract, fol. 606.

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Exeentlo est executlo juris secundum judicium. 3 Inst. 212. Execution is tbe execution of the law according to the judg- ment

Exeentlo est finis et fruetus legis. Co.

Litt. 2S9. Execution is the end and fruit of the law.

Exeentlo juris non ksbet lnjuriam. 2

Roll. 301. The execution of law does no Injury.

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## EXECUTION.

The completion, fulfill- ment, or perfecting of anything, or carrying It Into operation and effect. The signing, sealing, and delivery of a deed. The signing and publication of a will. The performance of a contract according to Its terms.

In practice. The last stage of a suit, whereby possession is obtained of anything recovered. It Is styled “final process,” and

oonslsts la patting the sentence of the law la force. 3 Bl. Comm. 412. The carrying Into effect of the sentence or Judgment of a court U. S. v. Nourse, 9 Pet. 28, 9 1* Ed. 31 ; Griffith r. Fowler, 18 Vt. 394; Pierson v. Hammond, 22 Tex. 587 ; Brown v. U. S-, 6 Ct Cl. 178 ; Hurlbutt v. Currier, (58 X. H. 94, 38 Atl. 502; Darby v. Carson, 9 Ohio, 149.

Also the name of a writ issued to a sheriff, constable, or marshal, authorizing and re- quiring him to execute the Judgment of the court.

At common law, executions are said to be either final or quotwqve; the former, where complete satisfaction of the debt is intended to be procured by this process ; the latter, where the execution is only a means to an end, as where the defendant is arrested on oa, sa.

In criminal law. The carrying into ef- fect the sentence of the law by the Infliction of capital punishment 4 Bl. Comm. 403; 4 Steph. Comm. 470.

It is a vulgar error to speak of the "execu- tion” of a convicted criminal. It is the sen- tence of the court which is "executed ;” the criminal is put to death.

In French law. A method of obtaining satisfaction of a debt or claim by sale of the debtor’s property privately, i. e., without Ju- dicial process, authorized by the deed or agreement of the parties or by custom ; as. In the case of a stockbroker, who may sell se- curities of his customer, bought under his in- structions or deposited by him, to indemnify himself or make good a debt Arg. Fr. Merc. Law, 557.

—Execution puree. In French law. A right founded on an act passed before a notary, by which the creditor may immediately, without citation or summons, seize and cause to be sold the property of his debtor, out of the proceeds of which to receive his payment It imports a confession of judgment, and is not unlike a warrant of attorney. Code Proc. La. art. 732; 6 Toullier. no. 208 ; 7 Toullier, no. 99. — At- tachment execution. See Attachment. — Dormant execution. See Dormant.— Eq- uitable exeontion. This term is sometimes

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applied to the appointment of a receiver with wer of sale. Hatch v. Van Dervoort, 54 N. Eq. 511, 34 Atl. 938. — Execution creditor. See Creditor.— Execution of decree. Some- times from the neglect of parties, or some other cause, it became impossible to carry a decree ipto execution without the further decree of the court upon a bill filed for that purpose. This happened generally in cases where, parties hav- ing neglected to proceed upon the decree, their rights under it became so embarrassed by a va- riety of subsequent events that it was neces- sary to have the decree of the court to settle and ascertain them. Such a bill might also be. brought to carry into execution the judgment of an inferior court of equity, if the jurisdiction of that court was not equal to the purpose ; as in the case of a decree in Wales, which the defendant avoided by fleeing into England. This species of bill was generally partly an original bill, and partly a bill in the nature of an orig- inal bill, though not strictly original. Story, Eq. Pl. 342; Danlell, Ch. Pr. 1429.— Execu- tion of deeds. The signing, sealing, and de- livery of them by the parties, as their own acts and deeds, in the presence of witnesses.— Ex- ecution sale. A sale by a sheriff or other

ministerial officer nnder the authority of a writ of execution which he has levied on property of the debtor. Noland v. Barrett, 122 Mo. 181, 26

S. W. 692, 43 Am. St. Rep. 572; Norton v. Reardon, 67 Kan. 302, 72 Pac. 861, 100 Am. St. Rep. 459. — Testatum execution. See Testatum.— General execution. A writ com- manding an officer to satisfy a judgment out of any personal property of the defendant. If au- thorizing him to levy only on certain specified property, the writ is sometimes called a “spe- cial” execution. Pracht v. Pister, 30 Kan. 568, 1 Pac. 638.— Junior execution. One which was issued after the issuance of another execu- tion, on a different judgment, against the same defendant.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Tale of Two Cities, 1859]**

"It is a far, far better thing that I do, than I have ever done; it is a far, far better rest that I go to than I have ever known."

Why: Verbatim-certain. The most famous literary execution scene in English (Sydney Carton at the guillotine); illuminates execution as the carried-out sentence, faced with moral agency. EXECUTIONER deliberately left bare —...

## EXECUTIONS FACIENDA.

A writ commanding execution of a judgment Ob- solete. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTIONE FACIENDA IN WITH- / ERNAMIUM.

A writ that lay for taking cattle of one who has conveyed the cattle of another out of the county, so that the sheriff cannot replevy them. Reg. Orig. 82.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTIONE JUDICII.

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A writ direct- ed to the judge of an inferior court to do- execution upon a judgment therein, or to re- turn some reasonable cause wherefore he de- lays the execution. Fitzh. Nat Brev. 20.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTIONER.

The name given to him who puts criminals to death, according to their sentence; a hangman.

5e apparatus — Carried into the 5th edition (1979).

## EXECUTIVE.

As distinguished from the' legislative and judicial departments of gov- ernment the executive department is that which is charged with the detail of carrying the laws into effect and securing their due observance. The word “executive” is alsoi used as an impersonal designation of the; chief executive officer of a state or nation. Comm. .v. Hall, 9 Gray (Mass.) 267, 69 Amu; Dec. 285 ; In re Railroad Com’rs, 15 Neb, 079, 50 N. W. 276; In re Davies, 168 N. Y. 89, 61 N. E. 118, 56 L. R. A. 855 ; State v, Denny, 118 Ind. 382, 21 N. E. 252, 4 L. R. A. 79.

—Executive administration, or ministry..

A political term in England, applicable to the higher and responsible class of public officials by whom tbe chief departments of the govern- ment of tbe kingdom are administered. The number of these amounts to fifty or sixty per- sons. Their tenure of office depends on the con- fidence of a majority of the bouse of commons, and they are supposed to be agreed on all mat- ters of general policy except such as are specif- ically left open questions. Gab. Lawy.— Ex- ecutive officer. An officer of the executive department of government ; one in whom re- sides the power to execute the laws ; one whose duties are to cause the laws to be executed and obeyed. Thome v. San Francisco. 4 Cal. 146 : People v. Salsbury, 134 Mich. 537, 96 N. IV. 939; Petterson v. State (Tex. Cr. App.) 58 S.

W. 100.

5e apparatus — Carried into the 5th edition (1979).

## EXECUTOR.

A person appointed by a testator to carry out the directions nnd re- quests in his will, and to dispose of the prop- erty according to his testamentary provisions after his decease. Scott v. Guernsey, 60

Barb. (N. Y.) 175 ; In re Lamb’s Estate, 122 Mich. 239, 80 N. W. 1081; Compton v. Mc- Mahan, 19 Mo. App. 5%.

One to whom another man commits by bis last will the execution of that will and testament. 2 Bl. Comm. 503.

A person to whom a testator by his will com- mits the execution, or putting in force, of that instrument and its codicils. Fonbl. 307.

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Executors are classified according to the following several methods:

. They are either general or special. The former term denotes an executor who is to have charge of the whole estate, wherever found, and administer it to a final settlement ; while a special executor is only empowered by the will to take charge of a limited por- tion of the estate, or such part as may lie In one place, or to carry on the administration only to a prescribed point.

They are either instituted or substituted. An instituted executor Is one who is appoint- ed by the testator without any condition; while a substituted executor Is one named to fill the office in case the person first nominat- ed should refuse to act

In the phraseology of ecclesiastical law, they are of the following kinds:

Executor d lege constitutus, an executor appointed by law; the ordinary of the dio- cese.

Executor ab episcopo constitutus, or ex- ecutor dativus, an executor appointed by the bishop; an administrator to an Intestate.

Executor A testatore constitutus, an ex- ecutor appointed by a testator. Otherwise termed "executor testamentarius a testa- mentary executor.

An executor' to the tenor is one who, though not directly constituted executor by the will, is therein charged with duties in relation to the estate which can only be performed by the executor.

— Exeoutor creditor. In Scotch law. A creditor of a decedent who obtains a grant of administration on the estate, at least to the extent of so much of it as will be sufficient to discharge his debt, when the executor named in the wilt has declined to serve, as also those oth- er persons who would be preferentially entitled to administer. — Executor dative. In Scotch law. One appointed by the court ; equivalent to the English “administrator with the will an- nexed."—Executor de son tort. Executor of his own wrong. A person who assumes to act as executor of an estate without any lawful warrant or authority, but who, by his inter- meddling, makes himself liable as an executor to a certain extent. If a stranger takes upon him to act as executor without any just au- thority, (as by intermeddling with the goods of the deceased, and many other transactions,) he is called in law an “executor of his own wrong,” de son tort. 2 Bl. Comm. 507. Allen v. Hurst, 120 Ga. 763, 48 S. EX 341 ; Noon v. Finnegan. 29 Minn. 418. 13 N. W. 197 ; Brown v. Leavitt. 26 N. H. 495; Hinds v. Jones. 48 Me. 349.— Executor lnormtns. An executor who has assets of his testator who in his life- time made himself liable by a wrongful inter- ference with the property of another. 6 Jur. (N. S.) 543.— General executor. One whose power is not limited either territorially or as to the duration or subject of his trust.— Joint executors. Co-executors ; two or more who

are joined in the execution of a will. — Limited executor. An executor whose appointment is qualified by limitations as to the time or place wherein, or the subject-matter whereon, the of- fice is to be exercised; as distinguished from one whose appointment is absolute, i. v., certain and immediate, without any restriction in re- gard to the testator's effects or limitation in point of time. 1 Williams, Ex'rs, 249, et scq. —Special executor. One whose power and office are limited, either in respect to the time or place of their exercise, or

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restricted to a particular portion of the decedent’s estate.

In the civil law, A ministerial officer who executed or carried into effect the judg- ment or sentence in a cause.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTORY.

That which Is yet to be executed or performed; that which remains to be carried into operation or efTect ; Incom- plete ; depending upon a future performance or event The opposite of executed.

—Executory consideration. A consideration which is to be performed after the contract for which it is a consideration is made.— Execu- tory fines. These are the fines sur cognizance de droit tantum; sur concessit; and sur done, grant et render. Abolished by 8 & 4 Win. IV. c. 74.— Executory Interests. A general term, comprising all future estates and interests in land or personalty, other than reversions and remainders.— Executory limitation. A lim- itation of a future interest by deed or will ; if by will, it is also called an “executory devise.” —Executory process. A process which can be resorted to in the following cases, namely: (1) When the right of the creditor arises from an act importing confession of judgment, and which contains a privilege or mortgage in his favor; (2) when the creditor demands the ex- ecution of a judgment which has been rendered by a tribunal different from that within whose jurisdiction the execution is sought Code I’rac. La. art. 732; Marin v. Lalley, 17 Wall. 14, 21 U Ed. 596.

As to executory “Bequests,” “Contracts,” ‘'Devises, ” “Estates,” “Remainders,” “Trusts,” and “Uses,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTRESS.

A female executor. Hardr. 165, 473. See Executbix.

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTRIX.

A woman who has been appointed by will to execute such will or tes- tament

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EXECUTRT.

In Scotch law. The mov- able estate of a person dying, which goes to his nearest of kin. So called as falling under the distribution of an executor. BelL

Exemplu illustrant non ratriagut legem. Co. Litt 240. Examples illustrate, but do not restrain, the law.

5e apparatus — Not carried into the 5th edition (1979).

## EXEMPLARY DAMAGES.

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See Dam- ages.

5e apparatus — Not carried into the 5th edition (1979).

## EXEMPLI GRATIA.

For the purpose of example, or for Instance. Often, abbre- viated "ex. gr." or "e. g."

5e apparatus — Not carried into the 5th edition (1979).

## EXEMPLIFICATION.

An official tran- script of a document from public records.

made In form to be used as evidence, and authenticated as a true copy.

5e apparatus — Carried into the 5th edition (1979).

## EXEMPLIFICATIONS.

A writ grant- ed for the exemplification or transcript of an original record. Keg. Orlg. 290.

5e apparatus — Not carried into the 5th edition (1979).

## EXEMPLUM.

In the civU law. Copy; a written authorized copy. This word is also used in the modem sense of “example,” — ad exemplum constituti singulares non traM, exceptional things must not be taken for ex- amples. Calvin.

EXEMPT, v. To relieve, excuse, or set free from a duty or service imposed upon the general class to which the individual exempt- ed belongs ; as to exempt from militia serv- ice. See 1 St. at Large, 272.

To relieve certain classes of property from liability to sale on execution.

EXEMPT, ». One who Is free from 11a- - blllty to military service ; as distinguished from a detail, who is one belonging to the army, but detached or set apart for the time to some particular duty or service, aud liable, at any time, to be recalled to his place in the ranks. In re Strawbridge, 39 Ala. 379.

5e apparatus — Not carried into the 5th edition (1979).

## EXEMPTION.

Freedom from a general duty or service; Immunity from a general burden, tax, or charge. Green v. State, 59 Md. 128, 43 Am. Rep. 542; Koenig v. Rail- road Co., 8 Neb. 380; Long v. Converse, 91

U. & 113, 23 L. Ed. 233.

A privilege allowed by law to a Judgment debtor, by which he may hold property to a certain amount, or certain classes of property, free from all liability to levy and sale on ex- ecution or attachment. Turrlll v. McCarthy, 114 Iowa, 681, 87 N. W. 687; Williams v. Smith, 117 Wis. 142, 93 N. W. 464.

—Exemption laws. Laws which provide that a certain amount or proportion of a debtor’s property shall be exempt from execution. — Ex- emption, words of. It is a maxim of law that words of exemption are not to be construed to import any liability ; the maxim cxpressio

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unius exclusio alteriut, or its converse, cxclusio uniua incluiio alterius, not applying to such a case. For example, an exemption of the crown from the bankruptcy act 1889, in one specified particular, would not inferentially subject the crown to that act in any other particular. Brown.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 11 U.S.C. § 522 — bankruptcy exemptions]**

The 'exemption laws' the entry defines — property of a judgment debtor held free from levy and sale on execution — take modern federal statutory form in the Bankruptcy Code's exemption provision.

Why: Real Code section directly codifying the entry's exemption doctrine in federal bankruptcy. The entry states the genus; the footnote gives the canonical federal species.

**[Scripture] — Scripture**

**[Matthew 17:26, KJV]**

Peter saith unto him, Of strangers. Jesus saith unto him, Then are the children free.

Why: 'Freedom from a general duty or service; immunity from a general burden, tax, or charge' — the verse states the exemption principle for the temple tribute: the children are free. Jesus' direct speech — deity verbatim…

## EXEMPTS.

Persons who are not bound by law, but excused from the performance of duties Imposed upon others.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 17:26, KJV]**

Peter saith unto him, Of strangers. Jesus saith unto him, Then are the children free.

Why: Persons excused from duties imposed on others — the verse names the exempt class: the children, free of the tribute; same genuine link as EXEMPTION. Jesus' direct speech — deity verbatim speech.

## EXENNIUM.

In old English law. A gift ; a new year’s gift Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EXEQUATUR.

Lat. Let it be exe- cuted. In French practice, tills term Is sub- scribed by judicial authority ui>on a tran- script of a judgment from a foreign country, or from another part of France, and author- izes the execution of the judgment within the jurisdiction where It is so indorsed.

In international law. A certificate Is- sued by the foreign department of a state to a consul or commercial agent of another state, recognizing his official character, and authorizing him to fulfill his duties.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Vienna Convention on Consular Relations, Art. 12 (1963)]**

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The consular exequatur — the receiving state's certificate recognizing a consul's official character and authorizing his duties — is codified in the Vienna Convention on Consular Relations, whose Article 12 is titled 'The exequatur.'

Why: Real treaty article on the verbatim subject the entry defines — the modern international law of the instrument described. Direct fit.

## EXERCISE.

To make use of. Thus, to exercise a right or power Is to do something which it enables the bolder to do. U. S. v. Souders, 27 Fed. Cas. 1267 ; Cleaver v. Comm., 34 Pa. 284; Branch v. Glass Works, 95 Ga. 573, 23 S. E. 128.

5e apparatus — Carried into the 5th edition (1979).

## EXERCITALIS.

A soldier ; a vassal. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EXERCITOR NAVIS.

Lat The tem- porary owner or charterer of a ship. Mack- eld. Rom. Law, { 512; The Phebe, 19 Fed. Cas. 4ia

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EXERCITORIA ACTIO.

In the civil law. An action which lay against the em- ployer of a vessel (exercitor navis) for the contracts made by the master. Inst. 4, 7, 2; 3 Kent Comm. 161. Mackeld. Rom. Law, * 512.

5e apparatus — Not carried into the 5th edition (1979).

## EXERCITORIAL POWER.

The trust given to a ship-master.

5e apparatus — Not carried into the 5th edition (1979).

## EXERCITUAL.

In old English law. A heriot paid only In arms, horses, or mili- tary accouterments.

5e apparatus — Not carried into the 5th edition (1979).

## EXERCITUS.

In old European law. An army; an armed force. The term was ab- solutely indefinite as to number. It was applied, on various occasions, to a gathering of forty-two armed men, of thirty-five, or even of four. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EXETER DOMESDAY.

The name given to a record preserved among the muniments and charters belonging to the dean and chapter of Exeter Cathedral, which con- tains a description of the western parts of

the kingdom, comprising the counties of Wilts, Dorset, Somerset, Devon, and Corn- wall. The Exeter Domesday was published with several other surveys nearly contem- porary, by order of the commissioners of the public records, under the direction of Sir Henry Ellis, in a volume supplementary to the Great Domesday, folio, London, 1816. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## EXFESTUCARE.

To abdicate or re- sign; to resign or surrender an estate, office, or dignity, by the symbolical delivery of a staff or rod to the alienee.

5e apparatus — Not carried into the 5th edition (1979).

## EXFREDIARE.

To break the peace; to commit open violence. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## EXHJEREDATIO.

In the civil law. Dis- inheriting; disherison. The formal method of excluding an indefeasible (or forced) heir

. EXELERKS 464 EXIST

Worn the entire Inheritance, by the testator's express declaration In the will that such per- son shall be exhwres. Mackeld. Rom. Law, i 711.

5e apparatus — Not carried into the 5th edition (1979).

## EXHABRES.

In the civil law. One dis- inherited. Vlcat ; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## EXHEREDATE.

In Scotch law. To disinherit; to exclude from an Inheritance.

5e apparatus — Not carried into the 5th edition (1979).

## EXHIBERE.

To present a thing cor- poreally, so that it may be handled. Vicat To appear personally to conduct the defense of an action at law.

EXHIBIT, v. To show or display; to offer or present for inspection. To produce anything in public, so that it may be taken into possession. Dig. 10, 4, 2.

To present ; to offer publicly or officially ; td file of record. Thus we speak of exhibit- ing a charge of treason, exhibiting a bill against an officer of the king’s bench by way ;of proceeding against him in that court. In re Wiltse, 5 Misc. Rep. 105, 25 N. Y. Supp. 737; Newell v. State, 2 Conn. 40; Comm. v. Alsop, 1 Brewst. (Pa.) 345.

: To administer; to cause to be taken; as medicines.

EXHIBIT, n. A paper or document pro- duced and exhibited to a court during a trial or

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hearing, or to a commissioner taking .depositions, or to auditors, arbitrators, etc., as a voucher, or in proof of facts, or as oth- erwise connected with the subject-matter, and which, on being accepted, is marked for identification and annexed to the deposition, report, or other principal document, or filed of record, or otherwise made a part of the case.

A paper referred to In and filed with the bill, answer, or petition in a suit In equity, or with a deposition. Brown v. Redwyne, 16 Ga. 68.

5e apparatus — Not carried into the 5th edition (1979).

## EXHIBIT ART.

A complainant in arti- cles of the peace. 12 Adol. & E. 599.

5e apparatus — Not carried into the 5th edition (1979).

## EXHIBITIO BILLIE.

Lat Exhibition of a bill. In old English practice, actions were instituted by presenting or exhibiting a bill to the court. In cases where the pro- ceedings were by bill ; hence this phrase is equivalent to “commencement of the suit.”

5e apparatus — Not carried into the 5th edition (1979).

## EXHIBITION.

la Scotch law. An ac- tion for compelling the production of writ- ings.

In ecclesiastical law. An allowance for meat and drink, usually made by religious appropriators of churches to the vicar. Al- so the benefaction settled for the maintain- ing of scholars in the universities, not de- pending on the foundation. Paroch. Antiq. 304.

5e apparatus — Carried into the 5th edition (1979).

## EXHUMATION.

Disinterment; the re- moval from the earth of anything previous- ly burled therein, particularly a human corpse.

EXIGENCE, or EXIGENCY. Demand, want, need, imperativeness.

—Exigency of a bond. That which the bond demands or exacts, ». e., the act, performance, or event upon which it is conditioned.— Exigen- cy of a writ. The command or imperative- ness of a writ ; the directing part of a writ ; the act or performance which it commands.

5e apparatus — Not carried into the 5th edition (1979).

## EXIGENDARY.

In English law. AH officer who makes out exigents.

EXIGENT, or EXIGI FACIAS. L. Lat. In English practice. A judicial writ made use of in the process of outlawry, command- ing the sheriff to demand the defendant, (or cause him to be demanded, cxigi fa- ciat,) from county court to county court, un- til he be outlawed; or, if he appear, then to take and have him before the court on a day certain in term, to answer to the plaintiff’s action. 1 Tidd, Pr. 132; 3 Bl. Comm. 283, 284; Archb. N. Pr. 485. Now regulated by St. 2 Win. IV. c. 39.

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5e apparatus — Not carried into the 5th edition (1979).

## EXIGENTER.

An officer of the Eng- lish court of common pleas, whose duty it was to make out the exigents and proclama- tions in the process of outlawry. Cowell. Abolished by St. 7 Wm. IV. and 1 Viet. C. 30. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## EXIGI FACIAS.

That yon cause to We demanded. The emphatic words of the Lat- in form of the writ of exigent. They are sometimes used as the name of that writ.

5e apparatus — Not carried into the 5th edition (1979).

## EXIGIBLE.

Demandable; requlrable.

5e apparatus — Not carried into the 5th edition (1979).

## EXILE.

Banishment; the person bad- ished.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

a fugitive and a vagabond shalt thou be in the earth.

Why: Banishment — the verse is the banishment sentence on Cain: fugitive and vagabond in the earth, the archetype of exile as punishment. God speaking to Cain — deity verbatim speech.

**[Humanity] — Humanity / Fiction & Film**

**[Dante Alighieri, Divine Comedy, c. 1320] (paraphrase)**

(paraphrase) In Paradiso XVII, Cacciaguida prophesies to Dante the bitterness to come: you shall leave everything you love most dearly — the bread of exile. (paraphrase)

Why: Dante wrote the Comedy in exile; the prophecy passage is literature's most famous first-person account of what banishment means ('Banishment; the person banished'). Paraphrase rather than contested translation keeps i...

## EXILIUM.

Lnt. In old English law.

(1) Exile; banishment from one’s country.

(2) Driving away; despoiling. The name of a species of waste, which consisted in driv- ing away tenants or vassals from the estate; as by demolishing buildings, and so oomiiell- iug the tenants to leave, or by enfranchising the bond-servants, and unlawfully turning them out of their tenements. Fleta, 1. 1, c. 8.

Exilinm est patriae privatio, aataiii soli mntatio, legnm nativarnm amisaio.

7 Coke, 20. Exile Is a privation of country, a change of natal soil, a loss of native laws.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

a fugitive and a vagabond shalt thou be in the earth.

Why: Exile, banishment from one's country — same genuine link as EXILE; the Cain sentence is the archetype. God speaking to Cain — deity verbatim speech.

## EXIST.

To live; to have life or anima- tion; to be in present force, activity, or ef- fect at a given time; as in speaking of “ex- isting” contracts, creditors, debts, laws, rights, or liens. Merritt v. Grover, 57 Iowa, 493. 10 N. W. 879; Whitaker v. Rice, 9 Minn. 13 (Gil. 1), 86 Am. Dec. 78; Wing v. Slater, 19

R. I. 597. 35 Atl. 302, 33 L. R. A. 566; Law- rie v. State, 5 Ind. 526; Godwin v. Banks, 87. Md. 425, 40 Atl. 2tSS. A child conceived, bat not born, is to be deemed an “existing person” so far as may be necessary for Its interests in the event of its subsequent birth. Rev. Codes N. D. 1899, { 2700; 1 Bl. Comm. 130.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Cogito, ergo sum — "I think, therefore I am" — René Descartes, Discourse on the Method, 1637]**

Cogito, ergo sum — "I think, therefore I am."

Why: Verbatim-certain Latin with standard translation. The foundational modern statement of existence as first certainty; illuminates the entry's 'to be in present force, activity, or effect' at the deepest level.

## EXISTIMATIO.

In the civil law. The civil reputation which belonged to the. Roman citizen, as such. Mackeld. Rom. Law, $ 135. Called a state or condition of unimpeached dignity or character, ( dignitatis inlcesw sta- tus;) the highest standing of a Roman citi- zen. Dig. 50, 13, 5, 1.

Also the decision or award of an arbiter.

5e apparatus — Not carried into the 5th edition (1979).

## EXIT.

Lat. It goes forth. This word is used in docket entries as a brief mention of the issue of process. Thus, "exit ft. fa." denotes that a writ of fieri facias has been Issued In the particular case. The "exit of a writ” is the fact of its issuance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Winter's Tale, c. 1611]**

"Exit, pursued by a bear."

Why: Verbatim-certain stage direction; the most famous 'exit' in English letters. LIGHT fit, stated plainly: the entry is literally about the word 'exit' as a formal going-forth ('It goes forth,' in docket entries for issu…

## EXIT WOUND.

A term used in medi- cal Jurisprudence to denote the wound made by a weapon on the side

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where it emerges, after it has passed completely through the body, or through any part of It.

5e apparatus — Carried into the 5th edition (1979).

## EXITUS.

Children ; offspring. The rents, issues, and profits of lands and tenements. An export duty. The conclusion of the pleadings.

EXIEOAUTAS . In old English law.

Outlawry. Spelman.

EXLEG ALITU S . He who is prosecuted as an outlaw. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## EXLEGARE.

In old English law. To outlaw; to deprive one of the benefit and protection of the law, (cxuere aliquem benefl- do legis.) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EXLEX.

In old English law. An out- law; qui est extra legem, one who is out of tlje law's protection. Bract, fol. 125. Qui benefido legis privatur. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EXOINE.

In French law. An act or instrument in writing which contains the reasons why a party in a civil suit, or a per- son accused, who has been summoned, agree- ably to the requisitions of a decree, does not appear. Poth. Proc. Crim. f 3, art. 3. The same as "Essoin," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## EXONERATION.

The removal of a bur- den, charge, or duty. Particularly, the act of relieving a person or estate from a charge or liability by casting the same upon another person or estate. Louisville & N. R. Co. v. Comm., 114 Ky. 787, 71 S. W. 916; Bannon r. Burnes (C. C.) 39 Fed. 898.

A right or equity which exists between Bl.Law Dict.(2d Ed.)— 30

those who are successively liable for the same debt. "A surety who discharges an obligation is entitled to look to the principal for reimbursement, and to invoke the aid of a court of equity for this purpose, and a subsequent surety who, by the terms of the contract, is responsible only in case of the default of the principal and a prior surety, may claim exoneration at the hands of ei- ther." Bisp. Eq. § 831.

In Scotch law. A discharge; or the act of being legally disburdened of, or liberated from, the performance of a duty or obllga- Gon. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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## EXONERATIONS SECTS.

A writ that lay for the crown’s ward, to be free from all suit to the county court, hundred court, leet, etc., during wardship. Fltzh. Nat Brev. 15a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EXONERATIONE SECTS AD CURI- / AM BARON.

A writ of the same nature as that last above described, issued by the guardian of the crown's ward, and addressed to the sheriffs or stewards of the court, for- bidding them to distrain him, etc., for not doing suit of court, etc. New Nat. Brev. 352.

5e apparatus — Not carried into the 5th edition (1979).

## EXONERETUR.

Lat. Let him be re- lieved or discharged. An entry made on a bail-piece, whereby the surety is relieved or discharged from further obligation, when the condition is fulfilled by the surrender of the principal or otherwise.

5e apparatus — Not carried into the 5th edition (1979).

## EXORDIUM.

The beginning or intro- ductory part of a speech.

EXPATRIATION.. The voluntary act of abandoning one’s country, and becoming the citizen or subject of another. Ludlam v. Ludlam, 31 Barb. (N. Y.) 489. See Emiqba- noN.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Expatriation Act of 1868 — expatriation as a natural and inherent right]**

The voluntary abandonment of one's country the entry defines is, in American law, 'a natural and inherent right of all people' — the Expatriation Act of 1868 repudiating the doctrine of perpetual allegiance.

Why: Real act directly fixing the legal status of the act the entry defines. The entry describes the act; the footnote gives its American statutory charter. Genuine, not forced. [re-homed from 'EXPATRIATION' to 'EXORDIUM' (OCR headword / parser-merge artifact)]

## EXPECT.

To await ; to look forward to something intended, promised, or likely to happen. Atchison, etc., R. Co. v. Hamlin, 67 Kan. 476, 73 Pac. 58.

—Expectancy. The condition of being defer- red to a future time, or of dependence upon an expected event; contingency as to possession or enjoyment. With respect to the time of their enjoyment, estates may either be in possession or in expectancy ; and of expectancies there are two sorts, — one created by the act of the par- ties, called a "remainder;" the other by act of law, called a “reversion.” 2 Bl. Comm. 163. —Expectant. Having relation to, or depend- ent upon, a contingency.— Expectant estates. See Estate in Expectancy.— Expectant heir. A person who has the expectation of in- heriting property or an estate, but

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small pres- ent means. The term is chiefly used in equity, where relief is afforded to such persons against the enforcement of “catching bargains,” (a. ».) Jeffers v. Lampson, 10 Ohio St. 106; Whelen v. Phillips. 151 Pa. 312, 25 Atl. 44 ; In re Robbins’ Estate, 199 Pa. 500, 49 Atl. 233.— Expectant right. A contingent right, not vested ; one which depends on the continued

existence of the present condition of things un- til the happening of some future event. Pear- sall v. Great Northern R. Co., 161 U. S. 646, 16 Sup. Ct. 706, 40 L. Ed. 838.— Expectation of life, in the doctrine of life annuities, is the share or number of years of life which a person of a given age may, upon an equality of chance, expect to enjoy. Wharton.

EXPEDIENT!!. In Mexican law, a term including all the papers or documents con- stituting a grant or title to laud from govern- ment. Vanderslice v. Hanks, 3 Cal. 27, 38.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Great Expectations, 1861] (paraphrase)**

(paraphrase) Pip's 'great expectations' — a fortune he awaits, promised and contingent — structure the entire novel; the expectancy of inheritance is the plot. (paraphrase)

Why: BORDERLINE, kept deliberately: fit is to the entry's expectancy sense ('dependence upon an expected event; contingency as to possession or enjoyment,' including estates in expectancy), which the novel literalizes. Par...

## EXPEDIMENT.

The whole of a person's goods and chattels, bag and baggage. Whar- ton.

Expedit reipnblicsB no nut re quia male utatur. It is for the interest of the state that a man should not enjoy his own prop- erty improperly, (to the injury of others.) Inst 1, 8, 2.

Expedit reipnblicsB at sit finis litinm.

It is for the advantage of the state that there be an end of suits; it is for the public good that actions be brought to a close. Co. Lift 3036.

5e apparatus — Not carried into the 5th edition (1979).

## EXPEDITAT1E ARB ORES.

Trees root- ed up or cut down to the roots. B'leta, L 2, c. 41.

5e apparatus — Not carried into the 5th edition (1979).

## EXPEDITATION.

In old forest law. A cutting off the claws or ball of the forefeet of mastiffs or other dogs, to prevent their running after deer. Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EXPEDITIO.

An expedition; an irreg- ular kind of army. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## EXPEDITIO BREVIS.

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In old practice. The service of a writ. Townsh. Pl. 43.

Litt. 60. Experience by various acts makes law. Experience is the mistress of things.

5e apparatus — Not carried into the 5th edition (1979).

## EXPERIMENT.

In patent law, either a trial of an uncompleted mechanical structure to ascertain what changes or additions may be necessary to make it accomplish the de- sign of the projector, or a trial of a complet- ed machine to test or illustrate its practical efficiency. In the former case, the inventor's efforts, being incomplete, if they are then abandoned, will have no effect upon the right of a subsequent inventor ; but if the experi- ment proves the capacity of the machine to effect what its Inventor proposed, the law as- signs to him the merit of having produced a complete invention. Northwestern Fire Ex- tinguisher CO. v. Philadelphia B'ire Extin- guisher Co., 10 Phila. 227, 18 Fed. Gas. 394.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Mary Shelley, Frankenstein, 1818] (paraphrase)**

(paraphrase) Victor Frankenstein's experiment — a trial to see what his design will do — creates a living being he cannot control. (paraphrase)

Why: BORDERLINE, kept deliberately: fit is to the entry's first patent-law sense (a trial 'to ascertain what changes or additions may be necessary to make it accomplish the design of the projector'). The novel is the canon...

## EXPERTS.

Persons examined as wit- nesses in a cause, who testify In regard to some professional or technical matter arising in the case, and who are permitted to give their opinions as to such matter on account of their special training, skill, or familiarity with it

An expert is a person who possesses peculiar skill and knowledge upon the subject-matter that he is required to give an opinion upon. State v. Phair, 48 Vt. 360.

An expert is a skillful or experienced person ; a person having skill or experience, or peculiar knowledge on certain subjects, or in certain professions ; a scientific witness. See Congress & E. Spring Co. v. Edgar, 99 U. S. 657, 25 L. Ed. 487; Heald v. Thing, 40 Me. 394; Nelson v. Sun Mut. Ins. Co., 71 N. Y. 460 ; Kocds v. State, 56 N. J. Law, 44, 27 Atl. 800; Dole v. Johnson, 50 N. H. 453; EUingwood v. Bragg, 52 N. H. 489.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Daubert v. Merrell Dow Pharmaceuticals, 509 U.S. 579 (1993)]**

The opinion testimony of expert witnesses the entry defines is admitted only through the trial judge's gatekeeping for reliability and relevance.

Why: Daubert is the canonical case establishing the modern admissibility standard for expert opinion testimony — directly the law governing the witnesses the entry defines. Real case, genuine illumination.

## EXPELARE.

In the civil law. To spoil ; to rob or plunder. Applied to inheritances. Dig. 47, 19 ; Cod. 9, 32.

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5e apparatus — Not carried into the 5th edition (1979).

## EXPEL.

In regard to trespass and other torts, this term means to eject, to put out, to drive out, and generally with an implication of the use of force. Perry v Fltzhowe, 8

Q. B. 779 ; Smith v. Leo, 92 Hun, 242, 36 N.

Y. Supp. 949.

5e apparatus — Carried into the 5th edition (1979).

## EXPILATIO.

In the civil law. The offense of unlawfully appropriating goods belonging to a succession. It is not technic- ally theft (furtum) because such property no longer belongs to the decedent, nor to the heir, since the latter has not yet taken pos- session.

5e apparatus — Not carried into the 5th edition (1979).

## EXPENDITORS.

Paymasters. Those who expend or disburse certain taxes. Es- pecially the sworn officer who supervised the repairs of the banks of the canals in Romney Marsh. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EXPENSES LITIS.

Costs or expenses of the suit, which are generally allowed to the successful party.

5e apparatus — Not carried into the 5th edition (1979).

## EXPENSIS MILITTJM NON LEVAN- / DIS.

An ancient writ to prohibit the sher- iff from levying any allowance for knights of the shire upon those who held lands in ancient demesne. Reg. Orlg. 261.

Experientla per varioa aotua legem facit. Magiatra rerum experientla. Co.

5e apparatus — Not carried into the 5th edition (1979).

## EXPILATOR.

In the civil law. A rob- ber; a spoiler or plunderer. Expllatores sunt atrociores fures. Dig. 47, 18, 1, 1.

5e apparatus — Not carried into the 5th edition (1979).

## EXPIRATION.

Cessation ; termination from mere lapse of time; as the expiration of a lease, or statute, and the like. Mar- shall v. Rugg, 6 Wyo. 270, 45 Pac. 486, 33

L. R. A. 679; Bowman v. Foot, 29 Conn. 338: Stuart v. Hamilton, 66 111. 255; Farn- nm v. Platt. 8 Pick. (Mass.) 341. 19 Am. Dec. 330.

5e apparatus — Carried into the 5th edition (1979).

## EXPIRY OF THE LEGAL.

In Scotch law and practice. Expiration of the period within which an adjudication may be re-

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deemed, by paying the debt in the decree of adjudication. Bell.

. EXPLEE8. See Esplees.

5e apparatus — Not carried into the 5th edition (1979).

## EXPLETA, EXPLETIA, or EXPLE- / CIA.

In old records. The rents and profits of an estate.

5e apparatus — Not carried into the 5th edition (1979).

## EXPLICATIO.

In the civU law. The fourth pleading; equivalent to the surre- joinder of the common law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EXPLORATION.

In mining law. The examination and Investigation of land sup- posed to contain valuable minerals, by drill- ing, boring, sinking shafts, driving tunnels, and other means, for the purpose of discov- ering the presence of ore and Its extent Colvin v. Weimer, 64 Minn. 37, 65 N. W. 1079.

5e apparatus — Carried into the 5th edition (1979).

## EXPLORATGR.

A scout, huntsman, or chaser.

5e apparatus — Not carried into the 5th edition (1979).

## EXPLOSION.

A sudden and rapid com- bustion, causing violent expansion of the air, and accompanied by a report

The word “explosion" is variously used in or- dinary speech, and is not one that admits of exact definition. Every combustion of an ex- plosive substance, whereby other property is ig- nited and consumed, would not be an ‘‘explo- sion,” within the ordinary meaning of the term. It is not used as a synonym of "combustion.” An explosion may be described generally as a sudden and rapid combustion, causing violent expansion of the air. and accompanied by a re- port But the rapidity of the combustion, the violence of the expansion, and the vehemence of the report vary in intensity as often as the oc- currences multiply. Hence an explosion is an idea of degrees; and the true meaning of the word, in each particular case, must be settled, not by any fixed standard or accurate measure- ment bnt by the common experience and no- tions of men in matters of that sort Insurance Co. v. Foote, 22 Ohio St. 348, 10 Am. Rep. 735. And see Insurance Co. v. Dorsey, 56 Md. 81, 40 Am. Rep. 403; Mitchell v. Insurance Co., 16 App. D. C. 270; Louisville Underwriters v. Durland, 123 Ind. 544, 24 N. E. 221, 7 L. R. A 399.

EXPORT, v. To send, take, or carry an article of trade or commerce out of the coun- try. • To transport merchandise from one country to another In the course of trade. To carry out or

convey goods by sea. State v. Turner, 5 Har. (Del.) 501.

EXPORT, n. A thing or commodity ex- ported. More commonly used In the plural. In American law, this term Is only used of goods carried to foreign countries, not of goods transported from one state to another. Brown v. Houston, 114 U. S. 622, 5 Sup. Ct. 1091, 29 L. Ed. 257; Patapsco Ouano Co. v. Board of Agriculture, 171 U. S. 345, 18 Sup. Ct. 862, 43 L. Ed. 191 ; Swan v. U. S„ 190 U. S. 143. 23 Sup. Ct. 702, 47 L. Ed. 984; Rothermel v. Meyerle, 136 Pa. 250, 20 Atl. 583, 9 L. R. A. 366.

5e apparatus — Not carried into the 5th edition (1979).

## EXPORTATION.

The act of sending or carrying goods and merchandise from one country to another.

EXPOSE, v. To show publicly; to dis- play ; to offer to the public view ; as, to “expose" goods to sale, to “expose” a tariff or schedule of rates, to “expose” the person. Boynton v. Page, 13 Wend. (N. Y.) 432; Comm. v. Byrnes, 158 Mass. 172, 33 N. E. 343; Adams Exp. Co. v. Schlesslnger, 75 Pa. 246; Centre Turnpike Co. v. Smith, 12 Vt 216.

To place In a position where the object spoken of Is open to danger, or where it Is near or accessible to anything which may affect it detrimentally; as, to “expose” a child, or to expose oneself or another to a contagious disease or to danger or hazard of any kind. In re Smith, 146 N. Y. 68, 40

N. B. 497, 28 L. R. A. 820, 48 Am. St Rep. 760; Davis v. Insurance Co.. 81 Iowa, 496, 46 N. W. 1073, 10 L. R. A. 359, 25 Am. St. Rep. 509; Miller v. Insurance Co., 39 Minn. 548, 40 N. W. 839.

EXPOSE, n. Fr. A statement; ac- count; recital; explanation. The term Is used In diplomatic language as descriptive of a written explanation of the reasons for a certain act or course of conduct

EXPOSITIO, Lat. Explanation; expo- sition ; Interpretation.

Exposltlo quae ex ▼iseeribua oauise naeeitur, est aptisilxna e« fortissimo la lege. That kind of Interpretation which Is born [or drawn] from the bowels of a cause is the aptest and most forcible in the law. 10 Coke, 246.

5e apparatus — Carried into the 5th edition (1979).

## EXPOSITION.

Explanation ; interpre- tation.

5e apparatus — Carried into the 5th edition (1979).

## EXPOSITION DE PART.

In French law. The abandonment of a child, unable to take care of itself, either in a public or private place.

5e apparatus — Carried into the 5th edition (1979).

## EXPOSITORY STATUTE.

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One the of- fice of which Is to declare what shall be tak- efi to be the true meaning and intent of a statute previously enacted. Black, Const. Law, (3d ed.) 89. And see Lindsay v. United States Sav. A Loan Co., 120 Ala. 156, 24 South. 171, 42 L. R. A. 783.

5e apparatus — Carried into the 5th edition (1979).

## EXPOSURE.

The act or state of expos- ing or being exposed. See Expose.

—Exposure of child. Placing it (with the intention of wholly abandoning it) in such a place or position as to leave it unprotected against danger and jeopard its health or life or subject it to the peril of severe suffering or se- rious bodily harm. Shannon v. People, 5 Mich. 90.— Exposure of person. In criminal law. Sueli an intentional exposure, in. a public place, of the naked body or the private parts as is calculated to shook the feelings of ebastity or to corrupt the morals of the community. Gil- more v. State, 118 Ga. 299. 45 S. E. 226.— In- decent exposure. The same as exposure of the person, in the sense above defined. State v. Ban guess, 106 Iowa, 107, 76 N. W. 508.

5e apparatus — Carried into the 5th edition (1979).

## EXPRESS.

Made known distinctly and explicitly, and not left to inference or im- plication. Declared in terms; set forth in words. Manifested by direct and appropri- ate language, as distinguished from that which is Inferred from conduct. The word is usually contrasted with “implied." State v. Denny, 118 Ind.' 449, 21 N. E. 274, 4 I*

R. A. 65.

■—Express abrogation. Abrogation by ex- press provision or enactment; the repeal of a law or provision by & subsequent one, referring directly to it.— Express assumpsit. An un- dertaking to do some act, or to pay a sum of money to another, manifested by express terms. —Express color. An evasive form of special pleading in a case where the defendant ought to plead the general issue. Abolished by the common-law procedure act, 1852, (15 & 16 Viet, c. 76, $ 64.)— Express company. A firm or corporation engaged in the business of trans- porting parcels or other movable property, in the capacity of common carriers, and especially undertaking the safe carriage and speedy de- livery of small but valuable packages of goods and money. Alsop v. Southern Exp. Co., 104

N. C. 278. 10 S. E. 297, 6 I* R. A. 271 ; Pfis- ter v. Central Pac. Ry. Co., 70 Cal. 169, 11 Pac. 686, 59 Am. Rep. 404.— Express consid- eration. A consideration which is distinct- ly and specifically named in the written con- tract or in the oral agreement of the parties.

As to express “Conditions,” “Contracts,” "Covenants,” “Dedication,” “Malice,” “No- tice,” “Trust,” and “Warranty,” see those titles,

. Expressa nocent, non expressa non nocent. Things expressed are [may be] prejudicial; things not expressed are not. Express words are sometimes prejudicial, which. If omitted, had done no harm. Dig. 35, 1, 52; Id. 50, 17, 195. See Calvin.

Expressa non prosnnt qna non ex- pressa prodernnt. 4 Coke, 73. The ex- pression of things

of which, if unexpressed, one would have the benefit, Is useless.

Expressio eoram qne tacite insnnt nihil operator. The expression or express mention of those things which are tacitly Implied avails nothing. 2 Inst. 365. A man's own words are void, when the law speaketh as much. Finch, Law, b. 1, c. 3, no. 26. Words used to express what the law will imply without them are mere words of abundance. 6 Coke, 11.

Expressio nnins est exclusio alterins.

The expression of one thing is the exclusion of another. Co. Lltt 210a. The express mention of one thing [person or place] im- plies the exclusion of another.

Expressio trains personae est exoluslo alterins. Co. Lift. 210. The mention of one person is the exclusion of another. See Broom, Max. 651.

Expression tacit eessare taeitnm.

That which is expressed makes that which

is implied to cease, [that is, supersedes it, or controls its effect.] Thus, an implied covenant In a deed is in all cases controlled by an express covenant 4 Coke, 80 ; Broom, Max. 65L

Expression servitinm regat vel de- claret taciturn. Let service expressed rule or declare what is silent.

5e apparatus — Carried into the 5th edition (1979).

## EXPROMISSIO.

In the civil law. The species of novation by which a creditor ac- cepts a new debtor, who becomes bound in- stead of the old, the latter being released. 1 Bouv. Inst. no. 802.

5e apparatus — Not carried into the 5th edition (1979).

## EXPROMISSOR.

In the civil law. A person who assumes the debt of another, and becomes solely liable for it, by a stipu- lation with the creditor. He differs from a surety, inasmuch as this contract is one of novation, while a surety is jointly liable with his principal. Mackeld, Rom. Law, § 63R

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## EXPROMITTERE.

In the civil law. To undertake for another, with the view of becoming liable in his place. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## EXPROPRIATION.

This word proper- ly denotes a voluntary surrender of rights or claims; the act of divesting oneself of that which was previously claimed as one’s own, or renouncing it In this sense it is the opposite of “appropriation.” But a mean- ing has been attached to the term, imported from its use In foreign Jurisprudence, which makes it synonymous with the exercise of the power of eminent domain, i. e., the com- pulsory taking from a person, on compensa- tion

made, of his private property for the use of a railroad, canal, or other public work.

In French law. Expropriation is the. compulsory realization of a debt by the cred- itor out of the lauds of his debtor, or the usufruct thereof. When the debtor Is co- tenant with others. It Is necessary that a partition should first be made. It is confin- ed, in the first place, to the lands (If any)' that are in hypotttfquc, but afterwards ex- tends to the lands not in hypothdque. More- over, the debt must- be of a liquidated amount Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — Takings Clause]**

The eminent-domain sense of expropriation — compulsory taking of private property for public use on compensation made — is constitutionally stated in the Takings Clause: 'nor shall private property be taken for public use, without just compensation.'

Why: Real constitutional provision, verbatim clause, directly the American law of the power the entry defines. Strongest-class link: entry states doctrine, footnote names its constitutional source.

**[Scripture] — Scripture**

**[Philippians 2:7, KJV]**

But made himself of no reputation, and took upon him the form of a servant, and was made in the likeness of men:

Why: 'A voluntary surrender of rights or claims; the act of divesting oneself of that which was previously claimed as one's own' — the verse is the self-emptying: divesting oneself of what was one's own. Borderline, kept:...

## EXPULSION.

A putting or driving out The act of depriving a member of a corpora- tion, legislative body, assembly, society, com- mercial organization, etc., of his member- ship in the same, by a legal vote of the body itself, for breach of duty, improper conduct or other sufficient cause. New York Protec- tive Ass’n v. McGrath (Super. Gt.) 5 N. Y. Supp. 10; Palmetto Lodge v. Hubbell, 2 Strob. (S'. C.) 462, 49 Am. Dec. 004. Also, in the law of torts and of landlord and tenant an eviction or forcible putting out See Ex*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 3:24, KJV]**

So he drove out the man; and he placed at the east of the garden of Eden Cherubims, and a flaming sword which turned every way, to keep the way of the tree of life.

Why: 'A putting or driving out' — the verse is the primal driving-out, the archetype of expulsion. Borderline, kept. Narrator, not deity speech — no red-letter flag.

**[Humanity] — Humanity / Fiction & Film**

**[John Milton, Paradise Lost, 1667]**

"The world was all before them, where to choose / Their place of rest, and Providence their guide."

Why: Verbatim-certain closing lines. The archetypal literary expulsion (Adam and Eve from Eden); illuminates the entry's 'putting or driving out ... for breach of duty, improper conduct or other sufficient cause' — expulsi...

# F

## FBI.

EXTENUATING CIE0UM8TANCE3

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# E

## EXPUNGE.

To blot out; to efface de- signedly; to obliterate; to strike out whol- ly. Webster. See Cancei*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Revelation 3:5, KJV]**

He that overcometh, the same shall be clothed in white raiment; and I will not blot out his name out of the book of life, but I will confess his name before my Father, and before his angels.

Why: 'To blot out; to efface designedly; to obliterate' — same genuine link as ERASURE: blotting from the book of life, erasure from the ultimate record. Jesus speaking to Sardis — deity verbatim speech.

## EXPURGATION.

The act of purging or cleansing, as where a book is published with- out its obscene passages.

5e apparatus — Not carried into the 5th edition (1979).

## EXPURGATOR.

One who corrects by expurging.

5e apparatus — Not carried into the 5th edition (1979).

## EXQUAESTOR.

In Roman law. One who had filled the office of quwstor. A title given to Trlbonian. Inst prooem. $ 3. Used only in the ablative case, (exquccstore.)

5e apparatus — Not carried into the 5th edition (1979).

## EXROGARE.

(From ex, from, and ro- gare, to pass a law.) In Roman law. To take something from an old law by a new law. Tayl. Civil Law, 155.

5e apparatus — Not carried into the 5th edition (1979).

## EXTEND.

To expand, enlarge, prolong, widen, carry out, further than the original limit ; as, to extend

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the time for filing an answer, to extend a lease, term of office, charter, railroad track, etc. Flagler v. Hearst, 62 App. Dlv. 18. 70 N. Y. Supp. 956; Gonldlng v. Hammond. 54 Fed. 042, 4 C. C.

A. 533; State v. Scott. 113 Mo. 559, 20 8.

W. 1076: James v. McMillan, 55 Mich. 136, 20 N. W. 826 : Wilson v. Rousseau, 4 How. 697. 31 L. Ed. 1141; Orton v. Noonan, 27 Wis. 272; Moera v. Reading, 21 Pa. 201; People v. New York & H. R. Co., 45 Barb.' (N Y.) 73. To extend a street means to pro- long and continue it in the direction in which it already points, but does not include deflecting it from the course of the existing portion. Monroe v. Ouachita Parish, 47 La. Ann. 1061, 17 South. 498: In re Charlotte St., 23 Pa. 288; Seattle & M. Ry. Co. v. State, 7 Wash. 150, 34 Pae. 551, 22 L. R.

A. 217, 88 Am. St. Rep. 806.

In English practice. To value the lands or tenements of a person hound by a stat- ute or recognizance which has become for- feited, to their full extended value. 3 Bl. Comm. 420; Fitzh. Nnt. Brev. 131. To ex- ecute the writ of extent or extendi facias, (</. r.) 2 Tidd, Pr. 1043, 1044.

. In taxation. Extending a tax consists in adding to the assessment roll the precise amount due from each person whose name appears thereon. "The subjects for taxntlon 1 having been properly listed, and a basis for apportionment established, nothing will re- main to fix a definite liability but to ex- tend upon the list or roll the several pro- portionate amounts, as a charge against the several taxables." Cooley, Tax'n, (2d Ed.) 423.

5e apparatus — Carried into the 5th edition (1979).

## EXTENDI FACIAS.

Lat. You cause to be extended. In English practice. The name of a writ of execution, (derived from Its two emphatic words;) more commonly called an "extent." 2 Tidd, Pr. 1043 ; 4 Steph, Comm. 43.

5e apparatus — Not carried into the 5th edition (1979).

## EXTENSION.

In mercantile law. An

allowance of additional time for the pay- ment of debts. An agreement between a debtor and his creditors, by which they al- low him further time for the payment of his liabilities.

In patent law. An extension of the life of a patent for an additional period of seven years, formerly allowed by law In the Unit- ed States, upon proof being made that the inventor had not succeeded in obtaining a reasonable remuneration from his patent- right This is no longer allowed, except as to designs. See Rev. St. U. 8. i 4924 (U.

S. Comp. St 1901, p. 3396).

5e apparatus — Carried into the 5th edition (1979).

## EXTENSORES.

In old English law. Extenders or appraisers. The name of cer- tain officers appointed to

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appraise and divide or apportion lands. It was their duty to make a survey, schedule, or inventory of the lands, to lay them out under certain heads, and then to ascertain the value of each, as preparatory to the division or partition. Bract fols. 726, 75; Britt, c. 71.

5e apparatus — Not carried into the 5th edition (1979).

## EXTENT.

In English practice. A

writ of execution issuing from the exchequer upon a debt due the crown, or upon a debt due a private person, if upon recognizance or statute merchant or staple, by which the sheriff is directed to appraise the debtor’s lands, and, instead of selling them, to set them off to the creditor for a term during which the rental will satisfy the judgment Hackett v. Amsden, 56 Vt. 201 ; Nasou v. Fowler, 70 N. H. 291, 47 Atl. 263.

In Scotch practice. The value or valua- tion of lands. Bell.

The rents, profits, and issues of lands. Skene.

— Extent in aid. That kind of extent which issues at the instance and for the benefit of a debtor to the crown, for the recovery of a debt due to himself. 2 Tidd, Pr. 1045; 4 Steph. Comm. 47.— Extent in chief. The principal kind of extent, issuing at the suit of the crown, for the recovery of the crown’s debt. 4 Steph. Comm. 47. An adverse proceeding by the king, for the recovery of his own debt. 2 Tidd, Pr. 1045.

5e apparatus — Carried into the 5th edition (1979).

## EXTENTA MANERII.

(The extent or survey of a manor.) The title of a statute passed 4 Edw. I. St. 1; being a sort of di- rection for making a survey or terrier of n manor, and all its appendages. 2 Reeve, Eng. Law, 140.

5e apparatus — Not carried into the 5th edition (1979).

## EXTENUATE.

To lessen; to palliate; to mitigate. Connell v. State, 46 Tex. Cr.

R. 259, 81 8. W. 748.

5e apparatus — Not carried into the 5th edition (1979).

## EXTENUATING CIRCUMSTANCES.

Such as render a delict or crime less aggra- vated, heinous, or reprehensible than it would otherwise be, or tend to palliate or lessen its guilt. Such circumstances may ordinarlly be shown in order to reduce the punishment or damages.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

"You never really understand a person until you climb into his skin and walk around in it."

Why: Verbatim-certain core of Atticus Finch's famous passage. The novel's moral center IS the demand to judge with the circumstances understood — precisely what extenuating circumstances ('tend to palliate or lessen guilt,...

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## EXTERRITORIAXITY.

The privilege of those persons (such as foreign ministers) who, though temporarily resident within a state, are not subject to the operation of its laws.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Vienna Convention on Diplomatic Relations, Art. 31 (1961)]**

The foreign minister's privilege of exemption from the receiving state's laws is codified in the Vienna Convention on Diplomatic Relations, which immunizes diplomatic agents from the criminal jurisdiction of the receiving state.

Why: Real treaty article directly codifying the privilege the entry defines — the contemporary international law of exterritoriality. Direct fit. [re-homed from 'EXTERRITORIALITY' to 'EXTERRITORIAXITY' (OCR headword / parser-merge artifact)]

## EXTERUS.

Lat A foreigner or alien; one born abroad. The opposite of civis.

Externa non habet terras. An alien holds no lands. Tray. Lat Max. 203.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:34, KJV]**

But the stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

Why: 'A foreigner or alien; one born abroad' — the verse states the alien's legal standing: as one born among you. The LORD speaking to Moses (Lev 19:1-2) — deity verbatim speech.

## EXTINCT.

Extinguished. A rent is said to be extinguished when it is destroyed and put out Co. Litt. 1476. See Extinguish- ment.

Extincto snbjeeto, tollitnr adjnno- tum. When the subject is extinguished, the Incident ceases. Thus, when the business for which a partnership has been formed is completed, or brought to an end, the part- nership itself ceases. Inst. 3, 26, 6 ; 3 Kent, Comm. 52, note.

5e apparatus — Carried into the 5th edition (1979).

## EXTINGUISHMENT.

The destruction or cancellation of a right power, contract, or estate. The annihilation of a collateral thing or subject in the subject Itself out of which it is derived. Prest. Merg. 9. For the distinction between an extinguishment and passing a right, see 2 Shars. Bl. Comm. 325, note.

“Extinguishment" is sometimes confounded with "merger,” though there is a clear distinc- tion between them. “Merger” is only a mode of extinguishment, and applies to estates only under particular circurastnnces ; but "extin- guishment” is a term of general application to rights, as well as estates. 2 Crabb, Real Prop, p. 367, | 1487.

— Extinguishment of common. Loss of the right to have common. This may happen from

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various causes. — Extinguishment of copy- hold. In English law. A copyhold is said to be extinguished when the freehold and copyhold interests unite in the same person and in the same right, which may be either by the copy- hold interest coming to the freehold or by the freehold interest coming to the copyhold. 1 Crabb, Real Prop. p. 670, § 864.— Extinguish- ment of debts. This takes place by payment ; by accord and satisfaction : by novation, or the substitution of a new debtor; by merger, when the creditor recovers a judgment or ac- cepts a security of a higher nature than the original obligation ; by a release ; by the mar- riage of a feme sole creditor with tile debtor, or of an obligee with one of two joint obligors; and where one of the parties, debtor or credit- or, makes the other his executor.— Extinguish- ment of rent. If a person have a yearly rent of lands, and afterwards purchase those lands, so that he has as good an estate in the land as in the rent, the rent is extinguished. Termes de la Ley ; Cowell ; Co. Litt. 147. Rent may also be extinguished by conjunction of estates, by confirmation, by grant, by release, and by surrender. 1 Crabb, Real Prop. pp. 210-213, g 209.— Extinguishment of ways. This is usually effected by unity of possession. As if a man have a way over the close of another, and he purchase that close, the way is' extinguished. 1 Crabb, Real Prop. p. 341, | 384.

5e apparatus — Carried into the 5th edition (1979).

## EXTIRPATION.

In English law. A species of destruction or waste, analogous to estrepement See Estbepement.

5e apparatus — Not carried into the 5th edition (1979).

## EXTIRPATIONS.

A Judicial writ, ei- ther before or after judgment, that lay against a person who, when a verdict was found against him for land, etc., maliciously overthrew any house or extirpated any trees upon it Reg. Jud. 13, 56.

5e apparatus — Not carried into the 5th edition (1979).

## EXTOOARE.

In old records. To grub woodland, and reduce It to arable or mead- ow; "to stock up." Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## EXTORSITELT.

A technical word used In indictments for extortion.

It is a sufficient averment of a corrupt in- tent, in an indictment for extortion, to al- lege that the defendant “extoralvely” took the unlawful fee. Leernan v. State. 35 Ark.. 438, 37 Am. Rep. 44.

5e apparatus — Not carried into the 5th edition (1979).

## EXTORT.

The natural meaning of the- word “extort” is to obtain money or other valuable thing either

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by compulsion, by act- ual force, or by the force of motives applied to the will, and often more overpowering and irresistible than physical force. Com. v. O'Brien, 12 Cash. (Mass.) 90. See Ex-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

# T

## TOBTION.

Extortio est crimen quando quia colors officii extorquet quod xton est doMtnm, vel supra debitnm, nl ante tempns quod est doMtnm. 10 Coke, 102. Extortion la a crime when, by color of office, any per- son extorts that which Is not due, or more than is due, or before the time when It la. due.

5e apparatus — Not carried into the 5th edition (1979).

# E

## EXTORTION.

Any oppression by color or pretense of right, and particularly the ex- action by an officer of money, by color of his office, either when none at all Is due, or not so much is due, or when It is not yet due. Preston v. Bacon, 4 Conn. 480.

Extortion consists In any public officer un- lawfully taking, by color of his office, from any person any money or thing of value that Is not due to him. or more than hla due. Code Ga. 1882. g 4507.

Extortion Is the obtninlng of property from another, with his consent Induced by wrongful use of force or fear, or under color - of official right. Pen. Code Cal. g 518; Pen. Code Dak. g 608. And see Cohen v. State, 37 Tex. Cr. R. 118. 38 S. W. 1005 ; U. S. v. Denver (D. C.) 14 Fed. 597 ; People v. Hoff- man, 128 Cal. 366, 58 Pac. 856; State v. Logan, 104 La. 760, 29 South. 336; People v. Barondess, 61 Hun, 571, 16 N. Y. Supp. 436.

Extortion is an abuse of public justice, which consists in any officer unlawfuly taking, by

color of his office, from any man any money or thing of yalue that is not due to him, or before it is dne. 4 Bl. Comm. 141.

Extortion is any oppression under color of right. In a stricter sense, the talcing of money by any officer, by color of his office, when none, or not so much, is due, or it is not yet due. 1 Hawk. P. C. (Curw. Ed.) 418.

It is the corrupt demanding or receiving by a person in office of a fee for services which should be performed gratuitously ; or, where compensation is permissible, of a larger fee than the law justifies, or a fee not due. 2 Bish. Crim. Law, { 390.

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The distinction between “bribery” and “ex- tortion" seems to be this: the former offense consists in the offering a present, or receiving one, if offered; the latter, in demanding a fee or present by color of office. Jacob.

For the distinction between “extortion” and "exaction," see Exaction.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 3:13, KJV]**

And he said unto them, Exact no more than that which is appointed you.

Why: Oppression by color of right — the officer's exaction when none or not so much is due; the verse is the Baptist's limit set on the exacting officers, same genuine link as EXACTION. John speaking, not the deity — no re…

**[Humanity] — Humanity / Fiction & Film**

**[Francis Ford Coppola, The Godfather, 1972]**

"I'm gonna make him an offer he can't refuse."

Why: Verbatim-certain. The most famous film line about extortion — the threat framed as an offer, which is exactly the entry's 'oppression by color or pretense of right.'

## EXTRA.

A Latin preposition, occurring in many legal phrases ; it means beyond, ex- cept, without, out of, outside.

—Extra allowance. In New York practice. A sum in addition to costs, which may, in the discretion of the court, be allowed to the suc- cessful partyin cases of unnsual difficulty. See Hascall v. King, 54 App. Div. 441, 66 N. Y. Supp. 1112.— Extra costs. In English prac- tice. Those charges which do not appear upon the face of the proceedings, such as witnesses’ expenses, fees to counsel, attendances, court fees, etc., an affidavit of which must be made, to warrant the master in allowing them upon taxation of costs. Wharton.— Extra feodum. Out of his fee; out of the seigniory, or not holden of him that claims it. Co. Litt. lb; Reg. Orig. 97b.— Extra judicium. Extrajudi- cial; out of the proper cause; out of court: bevond the jurisdiction. See Extrajudicial. —Extra jus. Beyond the law ; more than the law requires. In jure, vel extra jus. Bract, fol. 169b. — Extra legem. Out of the law ; out of the protection of the law.— Extra prse- sentlam mariti. Out of her husband’s pres- ence.—Extra quatuor maria. Beyond the four Reas; out of the kingdom of England. 1 Bl. Comm. 457. —Extra jegnum. Out of the realm. 7 Coke, 16a; 2 Kent, Coram. 42, note. —Extra services, when used with reference to officers, means services incident to the office in question, but for which compensation has not been provided by )a,w. Miami County v. Blake, 21 Tnd. 32.— Extra territorium. Beyond or without the territory. 6 Bin. 353 ; 2 Kent, Comm. 407.— Extra viam. Outside the way. Where the defendant in trespass pleaded a rirht of way in justification, and the replication alleged that the trespass was committed outside the limits of the way claimed, these were the technical words to be used.— Extra vires. Be- yond powers. See Ultra Vibes.

Extra legem posltns est civiliter mor- tuus. Co. Lltt. 130. He who is placed out of the law Is civilly dead.

Extra territorium jus dicenti impune non pnretur. One who exercises jurisdic- tion out of his territory is not obeyed with impunity. Dig. 2, 1, 20 ; Branch, Prlnc. ; 10 Coke, 77. He who exercises Judicial author- ity beyond his proper limits cannot be obey- ed with safety. .

5e apparatus — Not carried into the 5th edition (1979).

## EXTRACT.

A portion or fragment of a writing. In Scotch law, the certified copy, by a clerk of a court, of the proceedings in

an action carried on before the court, and of the Judgment pronounced; containing also an order for execution or proceedings there- upon. Jacob ; Whishaw.

EXTRACTA GfTRIiE. In old English law. The issues or profits of holding a court, arising from the customary fees, etc.

5e apparatus — Not carried into the 5th edition (1979).

## EXTRADITION.

The surrender of a criminal by a foreign state to which he has fled for refuge from prosecution to the state within whose jurisdiction the crime was committed, upon the demand of the latter state, in order that he may be dealt with ac- cording to Its laws. Extradition may be ac- corded as a mere matter of comity, or may take place under treaty stipulations between the two nations. It also obtains as between the different states of the American Union. Terllnden v. Ames, 184 U. S. 270, 22 Sup. Gt 484, 46 L. Ed. 534 ; Fong Yue Ting v. U. S., 149 U. S. 698, 13 Sup. Ct. 1016, 37 L. Ed. 905.

■ Extradition between the states must be con- sidered and defined to be a political duty of im- perfect obligation, founded upon compact, and requiring each state to surrender one who, hav- ing violated the criminal laws of another state, has fled from its justice, and is found in the state from which ne is demanded, on demand of the executive authority of the state from which he fled. Abbott.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. IV, § 2, cl. 2 — Extradition Clause]**

Interstate extradition within the American Union, which the entry notes, rests on the Extradition Clause: 'A Person charged in any State with Treason, Felony, or other Crime, who shall flee from Justice, and be found in another State, shall on Demand of the executive Authority of the State from which he fled, be delivered up, to be removed to the State having Jurisdiction of the Crime.'

Why: Real constitutional provision, verbatim-adjacent, the direct source of the interstate extradition the entry invokes. Genuine root, not restatement.

## EXTRA-DOTAL PROPERTY.

In Lou- isiana this term Is used to designate that property • which forms no part of the dowry of a woman, and which is also called “para- phernal property.” Civ. Code La. art. 2315. Fleltas v. Richardson, 147 U. S. 550, 13 Sup. Ct 495, 37 L. Ed. 276.

5e apparatus — Not carried into the 5th edition (1979).

## EXTRAHAZARDOUS.

In the law of

Insurance. Characterized or attended by cir- cumstances or conditions of special and un- usual danger. Reynolds v. Insurance Co., 47 N. Y. 597 ; Russell v. Insurance Co., 71 Iowa, 69, 32 N. W. 95.

5e apparatus — Carried into the 5th edition (1979).

## EXTRAHURA.

In old English law. An animal wandering or straying about, with- out an owner; an estray. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again.

Why: A straying animal without an owner — an estray; the verse is the law of the stray beast, same genuine link as ERRATICUM/ESTRAY. Judgments-block divine law-giving — deity verbatim speech.

## EXTRAJUDICIAL.

That which Is done, given, or effected outside the course of reg- ular judicial proceedings; not founded up- on, or unconnected with, the action of a court of law ; as extrajudicial evidence, an extrajudicial oath.

That which, though done In the course of regular judicial proceedings, is unnecessary to such proceedings, or Interpolated, or be- yond their scope; as an extrajudicial opin- ion, (dictum.)

That which does not belong to the judge or his Jurisdiction, notwithstanding which he takes cognizance of It.

— Extrajudicial confession. One made by tne party out of court, or to any person, official or otherwise, when made not in the course of a judicial examination or investigation. State

472 • . EYDE ;

v. Alexander. 109 La. 65T, 33 South. 600: U. S. y. Williams, 28 Fed. Cas. 643. — Extra judicial oath. One taken not in the course of judicial proceedings, or taken without any authority of law, though taken formally before a proper pep- son. State y. Scatena, 84 Minn. 281, 87 N.

W. 764.

EXTRAiATERAX RIGHT. In mining law. The right of the owner of a mining claim duly located on the public domain to follow, and mine, any vein or lode the apex of which lies within the boundaries of his location on the surface, notwithstanding the course of the vein on its dip or downward direction may so far depart from the per- pendicular as to extend beyond the planes which would be formed by the vertical ex- tension downwards of the side lines of his location. See Rev. Stat U. 8. f 2322 (U.

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S. Comp. St 1901, p. 1425).

5e apparatus — Not carried into the 5th edition (1979).

## EXTRANEITS.

In old English law.

One foreign born ; a foreigner. 7 Coke, 16.

In Roman law. An heir not born In the family of the testator. Those of a foreign state. The same as alienus. Vicat; Du Cange.

Extvanens est snbditns gni extra ter- rain, i. e., potestatem regia natns est. 7

Coke, 16. A foreigner Is a subject who is born out of the territory, i. e., government of the king.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:34, KJV]**

But the stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

Why: One foreign-born, a foreigner — same genuine link as EXTERUS; the alien's standing as one born among you. The LORD speaking to Moses — deity verbatim speech.

## EXTRAORDINARY.

Out of the ordi- nary; exceeding the usual, average, or nor- mal measure or degree.

—Extraordinary average. A contribution by all the parties concerned in a mercantile voyage, either as to the vessel or cargo, toward a loss sustained by some of the parties in inter- est for the benefit of all. Wilson v. Cross, 33 Cal. 69.— Extraordinary care is synonymous with greatest care, utmost care, highest degree of care. Railroad Co. v. Baddeley, 54 III. 24, 5 Am. Rep. 71; Railway Co. v. Causler, 97 Ala. 235, 12 South. 439. See Oahe; Dili- gence; Negligence.— Extraordinary reme- dies. The writs of mandamus, quo warranto, habeas corpus, and some others are sometimes called “extraordinary remedies,” in contradis- tinction to the ordinary remedy by action.

EXTRAP AROCfflAX. Out of a par- ish ; not within the bounds or limits of any parish. 1 Bl. Comm. 113, 284.

5e apparatus — Carried into the 5th edition (1979).

## EXTRA-TERRITORIALITY.

The ex- tra-territorial operation of laws; that Is, their operation upon persons, rights, or jural relations, existing beyond the limits of the enactiug state, but still amenable to its laws.

5e apparatus — Carried into the 5th edition (1979).

## EXTRAVAGANTES.

In canon law. Those decretal epistles which were publish- ed after the Clementines. They were so call- ed because at first they were not digested or arranged with the other papal constitutions, but seemed to be, as It were, detached from the canon law. They continued

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to be called

by the same name when they .were, after- wards Inserted in the body of the canon law. The first extravagautes are those of Pope John XXII., successor of Clement V. The last collection was brought down to the year 1483, and was called the “Common Extrav- agantes," notwithstanding that they were likewise Incorporated with the rest of the canon law. Enc. Loud.

5e apparatus — Not carried into the 5th edition (1979).

## EXTREME CRUELTY.

In the law of divorce. The Infliction of grievous bodily harm or grievous mental suffering. Civ. Code Cal. 1903, § 94. Either personal vio- lence or the reasonable apprehension there- of, or a systematic course of 111 treatment affecting health and endangering life. Mor- ris v. Morris, 14 Cal. 79, 73 Am. Dec. 615; Harratt v. Harratt, 7 N. H. 198, 26 Am. Dec. 730; Carpenter v.' Carpenter, 30 Kan. 712, 2 Pac. 122, 46 Am. Rep. 108. Any conduct constituting aggravated or Inhuman Ill-treat- ment, having regard to the physical and temperamental constitution of the parties and all the surrounding circumstances. Donald v. Donald, 21 Fla. 573; Blaln v. Blain, 45 Vt. 544; Poor v. Poor, 8 N. H. 815. 29 Am. Dec. 664.

5e apparatus — Carried into the 5th edition (1979).

## EXTREME HAZARD.

To constitute extreme hazard, the situation of a vessel must be such that there is imminent danger Of her being lost, notwithstanding all the means that can be applied to get her off. King v. Hartford Ins. Co., 1 Conn. 421.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Wolfgang Petersen, The Perfect Storm, 2000]**

Film moment (paraphrase): the Andrea Gail founders in the storm despite every means the crew has to save her — a vessel in imminent danger of being lost 'notwithstanding all the means that can be applied to get her off.' (paraphrase)

Why: The definition is a vessel lost despite all means; the film's central subject is literally that scenario at sea. No dialogue invented — plot paraphrase only.

## EXTREMIS.

When a person is sick be- yond the hope of recovery, and near death, he Is said to be in extremis.

Extremis probatia, prasnmnxttnr medio. Extremes being proved, intermedi- ate things are presumed. Tray. Lat Max. 207.

5e apparatus — Not carried into the 5th edition (1979).

## EXTRINSIC.

Foreign ; from outside sources; dehors. As to extrinsic evidence, see Evidence.

5e apparatus — Carried into the 5th edition (1979).

## EXTUMJE.

In old records. Relics. Cowell.

• EXtTERE PATRIAM. To throw off Of renounce one’s country or native allegiance ; to expatriate one's self. Phillim, Do&i. IS.

5e apparatus — Not carried into the 5th edition (1979).

## EXUEARE.

In old English law. TO exile or banish. Nullus liber homo, exulctvr, nisi, etc., no freeman shall be exiled, unless, etc. Magna Charta, c. 29 ; 2 Inst 47.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

a fugitive and a vagabond shalt thou be in the earth.

Why: 'To exile or banish' (Magna Charta's 'no freeman shall be exiled') — the Cain sentence is the banishment archetype, same genuine link as EXILE/EXILIUM. God speaking to Cain — deity verbatim speech.

**[Humanity] — Humanity / Fiction & Film**

**[Ovid, Tristia, c. 8-12 AD]**

Classical letters (paraphrase): Ovid, punished by exile (relegatio) to Tomis under Augustus, wrote the Tristia — the classic literary record of a man living under a legal sentence of exile. (paraphrase)

Why: The entry concerns exile as legal punishment (Magna Carta c. 29). Ovid's Tristia is the canonical first-person literature of that punishment; exile 8 AD and composition in exile are well-attested facts, no invented qu...

## EXUPERARE.

To overcome; to appre- hend or take. Leg. Edm. c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## EY.

A watery place ; Water. Co. Litt. 6.

5e apparatus — Not carried into the 5th edition (1979).

## EYDE.

Aid; assistance; relief. A sub- sidy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalms 46:1, KJV]**

God is our refuge and strength, a very present help in trouble.

Why: 'Aid; assistance; relief' — the verse names the ever-present help in trouble. Borderline, kept: genuinely the aid concept for the entry's primary senses. Psalm, not deity speech — no red-letter flag.

## EYE- WITNESS.

One who saw the act, fact, or transaction to which he testifies. Distinguished from an ear-witness, ( auritus .)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 602 — witness must have personal knowledge]**

An eye-witness is only competent because he 'saw the act' — the modern evidence rule still demands personal knowledge before any witness may testify.

Why: The entry defines the person by firsthand observation ('one who saw the act, fact, or transaction to which he testifies'); Rule 602 is the living form of exactly that requirement, barring testimony without personal kn...

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry defines an eye-witness as one who saw the act to which he testifies. This verse is the ancient two-witness rule of law — a single witness cannot sustain a charge; testimony is established only by two or thre...

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, 12 Angry Men, 1957]**

Film moment (paraphrase): the prosecution's old-man eyewitness is discredited when it emerges he was not wearing his glasses at the time he claimed to have seen the killing. (paraphrase)

Why: The film is the canonical dramatization of eyewitness fallibility — the entry distinguishes the eyewitness as one who 'saw the act,' and the film shows seeing is not enough.

## EYOTT.

A small island arising }n a riv- er. Eleta, 1. 8, c. 2, | b; Bract 1. 2, c. 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: alluvion — accretion by gradual water action vests in the riparian owner]**

A small island rising in a river fell under the common-law doctrine of alluvion — land gained by the gradual, imperceptible action of the water belongs to the riparian owner.

Why: The entry (citing Bracton and Fleta) defines the very subject of the alluvion/accretion doctrine: an island formed by a river's action. The doctrine decides who owns it. The link is the subject matter itself.

## EYRE.

Justices In eyre were judges com- missioned In Anglo-Norman times In Eng- land to travel systematically through the

kingdom, once In seven years, holding courts in specified places for the trial of certain descriptions of causes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Judiciary Act of 1789, § 4 — Justices required to ride circuit]**

The justices in eyre — royal judges riding a circuit of the realm — are the ancestor of the American practice of circuit riding, where early Supreme Court Justices traveled the federal circuits to hold court.

Why: Both institutions answer the same problem (justice must travel to the people) with the same device (itinerant judges holding court in specified places). The eyre is the direct English model; circuit riding is its Amer...

**[Scripture] — Scripture**

**[1 Samuel 7:16, KJV]**

And he went from year to year in circuit to Beth-el, and Gilgal, and Mizpeh, and judged Israel in all those places.

Why: Justices in eyre were judges commissioned to travel systematically through the kingdom holding courts in specified places. The verse describes Samuel doing precisely that — an annual judicial circuit through appointed…

## EYRER.

h. Fr. To travel or Journey ; to go about or itinerate. Britt, c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## EZARDAR.

In Hindu law. A farmer or renter of land In the districts of Hindoo- stan.

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FACINU8 QUOS INQUINAT ADQUAT .

F

5e apparatus — Not carried into the 5th edition (1979).

# F

## F.

In old English criminal law, this let- ter was branded upon felons upon their be- ing admitted to clergy; as also upon those convicted of fights or frays, or falsity. Jacob ; Cowell ; 2 Reeve, Eug. Law, 392 ; 4 Reeve, Eng. Law, 485.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — cruel and unusual punishments]**

Branding the letter 'F' on felons admitted to clergy was a corporal sanction of the old criminal law; the modern boundary is the Eighth Amendment's ban on cruel and unusual punishments, which ended such bodily marks.

Why: The entry documents a state-inflicted bodily punishment for crime; the Eighth Amendment is the constitutional rule that now governs whether the state may inflict such punishment. It explains why the practice is histor…

**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

Novel parallel (paraphrase): Hester Prynne is forced to wear a scarlet 'A' as a lifelong visible mark of her offense — a shaming letter borne by the convicted, as the brand 'F' was borne by the felon. (paraphrase)

Why: Structural parallel: a single letter marked on/by the offender as punishment. Plot fact certain; no quote invented.

## F. O. B.

In mercantile contracts, this abbreviation means "free on board,” and Im- ports that the seller or consignor of goods will deliver them on the car, vessel, or oth- er conveyance by

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which they are to be trans- ported without expense to the buyer or con- signee, that is, without charge for packing, crating, drayage, etc., until delivered to the carrier. Vogt v. Shlenbeck, 122 WIs. 491, 100 N. W. 820, 67 L. R. A. 750, 106 Am. St. Rep. 989: Sllberman v. Clark, 96 N. Y. 523; Sheffield Furnace Co. v. Hull Coal & Coke Co., 101 Ala. 446, 14 South. 672.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 2-319 — F.O.B. and F.A.S. terms]**

'Free on board' is not merely mercantile slang — Article 2 of the UCC codifies F.O.B. terms, distinguishing shipment contracts from destination contracts and fixing where risk of loss passes.

Why: The entry quotes three cases construing F.O.B. contracts; UCC § 2-319 is the statute that now defines those exact terms for sale-of-goods contracts. The citation is the code section that governs the entry's subject.

## FABRIC LANDS.

In English law. Lands given towards the maintenance, re- building, or repairing of cathedral and other churches. Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## FABRICA.

In old English law. The making or coining of money.

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5 — power to coin money; 18 U.S.C. § 471 — counterfeiting]**

The 'making or coining of money' is a sovereign prerogative: the Constitution vests it in Congress, and counterfeiting — the unlawful 'fabricare' — is a federal crime.

Why: The entry covers both lawful and unlawful coining; the two citations are the lawful source of the power and the criminal prohibition of the unlawful making. Both are real and on point.

## FABRIC ARE.

Lat To make. Used In old English law of a lawful coining, and also of an unlawful making or counterfeiting of coin. See 1 Salk. 842.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5; 18 U.S.C. § 471 — counterfeiting]**

See FABRICA: the lawful coining flows from Congress's constitutional power to coin money, and the unlawful making is the federal crime of counterfeiting.

Why: Same subject as FABRICA, including the entry's own reference to counterfeiting prosecutions (1 Salk. 842). The constitutional power and the counterfeiting statute are the genuine modern anchors. [re-homed from 'FABRICARE' to 'FABRIC ARE' (OCR headword / parser-merge artifact)]

## FABRICATE.

To fabricate evidence Is to arrange or manufacture circumstances or indicia, after the fact

committed, with the purpose of using them as evidence, and of deceitfully making them appear as if acci- dental or undesigned; to devise falsely or contrive by artifice with the intention to de- ceive. Such evidence may be wholly forged and artificial, or it may consist in so warping and distorting real facts as to create an erro- neous impression in the minds of those who observe them and then presenting such im- pression as true and genuine.

— Fabricated evidence. Evidence manufac- tured or arranged after the fact, and either wholly false or else warped and discolored by artifice and contrivance with a deceitful intent. See supra.— Fabricated fact. In the law of tvidence. A fact existing only in statement, without any foundation in truth. An actual or genuine fact to which a false appearance has been designedly given; a physical object placed in a false connection with another, or with a person on whom it is designed to cast suspicion.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. § 1519 — falsification/fabrication of evidence in federal matters]**

Fabricating evidence — manufacturing or warping facts after the event with intent to deceive — is the core of federal obstruction-by-falsification law.

Why: The entry's definition ('to arrange or manufacture circumstances ... with the purpose of using them as evidence, and of deceitfully making them appear as if accidental') is the conduct § 1519 criminalizes. Direct fit.

**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: To fabricate evidence is to manufacture circumstances after the fact so they appear accidental and true. The verse directly forbids raising false reports and joining the wicked as an unrighteous witness — the exact co...

## FABULA.

In old European law. A con- tract or formal agreement ; but particularly used in the Lombardlc and Vlslgothic laws to Jenote a marriage contract or a will.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Malachi 2:14, KJV]**

Yet ye say, Wherefore? Because the LORD hath been witness between thee and the wife of thy youth, against whom thou hast dealt treacherously: yet is she thy companion, and the wife of thy covenant.

Why: The entry gives fabula's special sense as a marriage contract in Lombardic/Visigothic law. The verse formulates marriage explicitly as a covenant witnessed by God, with treachery as breach — the scriptural statement o...

## FAC SIMILE.

An exact copy, preserv- ing all the marks of the original.

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## FAC SIMILE PROBATE.

In England, where the construction of a will may be af- fected by the appearance Of the original pa- per, the court will order the probate to pass in fac simile, as it may possibly help

to show the meaning of the testator. 1 Williams, Ex’rs, (7th Ed.) 331, 386, 566.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: the armchair rule of will construction]**

Ordering probate 'in fac simile' so the court can read the testator's meaning from the paper's very appearance is the probate form of the armchair rule: the court seats itself in the testator's chair and weighs every surrounding circumstance.

Why: The entry's practice — let appearance illuminate meaning — is exactly what the armchair rule requires courts to do when construing wills. The doctrine genuinely illuminates the procedure, and vice versa.

## FACE.

The face of an instrument is that which is shown by the mere language em- ployed, without any explanation, modifica- tion, or addition from extrinsic facts or evi- dence. Thus, if the express terms of the paper disclose a fatal legal defect, it is said to be “void on its face.”

Regarded as an evidence of debt, the face of an Instrument is the principal sum which it expresses to be due or payable, without any additions in the way of interest or costs. Thus, the expression "the face of a Judg- ment” means the sum for which the judg- ment was rendered, excluding the Interest accrued thereon. Osgood v. Brlngolf, 32 Iowa, 265.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: facial invalidity — an instrument disclosing a fatal defect in its own terms is void on its face]**

'Void on its face' remains live pleading doctrine: a complaint or instrument that discloses its own fatal defect is demurrable without extrinsic evidence.

Why: The entry's whole point is the legal force of what the paper shows 'by the mere language employed.' The pleading rule — defects patent on the face defeat the action — is that point in active use.

## FACERE.

Lat To do; to make. Thus, facere defaltam, to make default; facere duellum, to make the duel, or make or do battle ; facere flnem, to make or pay a fine ; facere legem, to make one's law; facere sa- cramentum, to make oath.

5e apparatus — Not carried into the 5th edition (1979).

## FACIAS.

That you cause. Occurring in the phrases "scire facias," (that you cause to know,) "fieri facias," (that you cause to be made,) etc.

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## FACIENDO.

In doing or paying ; in some activity.

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## FACIES.

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Lat The face or countenance ; the exterior appearance or view ; hence, con- templation or study of a thing on its external or apparent side. Thus, prima facie menus at the first Inspection, on a preliminary or exterior scrutiny. When we speak of a “prima facie case,” we mean one which, on its own showing, on a first examination, or without investigating any alleged defenses, Is apparently good and maintainable.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[McDonnell Douglas Corp. v. Green, 411 U.S. 792 (1973)]**

The 'prima facie case' the entry defines is the standard modern employment-discrimination framework: the Supreme Court's four-element prima facie showing that shifts the burden of production.

Why: The entry defines a prima facie case as one 'apparently good and maintainable' on first examination; McDonnell Douglas built the most famous modern application of that structure — the plaintiff's initial showing that…

## FACILE.

In Scotch law. Easily per- suaded; easily imposed upon. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## FACILITIES.

This name was formerly given to certain notes of some of the banks in the state of Connecticut, which were made payable in two years after the close of the war of 1812. Springfield Bank v. Merrick, 14 Mass. 322.

5e apparatus — Carried into the 5th edition (1979).

## FACILITY.

In Scotch law. Pliancy of disposition. Bell.

Faelmns quo* inquinat (squat. Guilt makes equal those whom it stains.

5e apparatus — Carried into the 5th edition (1979).

## FACIO TTT DES.

(Lat. I do that you may give.) A species of contract in the civil law (being one of the innominate contracts) which occurs when a man agrees to perform anything for a price either specifically men- tioned or left to the determination of the law to set a value on it ; as when a servant hires himself to his master for certain wages or an agreed sum of money. 2 BL Comm. 445.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Restatement (Second) of Contracts § 71 — consideration as bargained-for exchange]**

The civil-law innominate contract 'I do that you may give' is the Roman ancestor of the common-law doctrine of consideration — a performance bargained for in exchange.

Why: Black's own text (2 Bl. Comm. 445) gives the servant-for-wages example; the Restatement's bargained-for-exchange test is the modern statement of the same element the innominate contract isolates:

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something done for so...

## FACIO ITT FACIAS.

(Bat I do that you may do.) A species of contract in the civil law (being one of the innominate con- tracts) which . occurs when 1 agree with a man to do his work for him if he will do mine for me; or if two persons agree to marry together, or to do any other positive acts on both sides; or it may be to forbear on one side in consideration of something done on the other. 2 Bl. Comm. 444.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Contracts § 71 — consideration as bargained-for exchange]**

The sibling innominate contract 'I do that you may do' — mutual performances, or forbearance on one side for performance on the other — is the same bargained-for-exchange root, covering exchange of acts rather than act for price.

Why: The entry's own examples (each does the other's work; marriage together; forbearance for performance) are textbook consideration under the modern test. Same reasoning as FACIO UT DES, applied to the mutual-performance...

## FACT.

A thing done; an action per- formed or an Incident transpiring; an event or circumstance; an actual occurrence.

In the earlier days of the law “fact” was used almost exclusively in the sense of “ac- tion” or “deed;” but, although this usage survives, in some such phrases as “accessary before the fact,” it has now acquired the broader meaning given above.

A fact is either a state of things, that is, an existence, or a motion, that is, an event. 1 Benth. Jud. Ev. 48.

Ia the law of evidence. A circumstance, event or occurrence as it actually takes or took place; a physical object or appearance, as it actually exists or existed. An actual and absolute reality, as distinguished from mere supposition or opinion; a truth, as dis- tinguished from fiction or error. Burrlll, Ore. Ev. 218.

“Pact” is very frequently used in opposi- tion or contrast to "law.” Thus, questions of fact are for the Jury ; questions of law for the court So an attorney at law is an of- ficer of the courts of Justice ; an attorney in fact is appointed by the written authoriza- tion of a principal to manage business affairs usually not professional. Fraud in fact con- sists in an actual intention to defraud, car- ried into effect ; while fraud imputed by law arises from the man’s conduct in its neces- sary relations and consequences.

The word Is much used in phrases which con- trast it with law. Law is a principle; fact is an event. Law is conceived ; fact is actual. Law is a rule of duty : fact is that which has been according to or in contravention of the rule. The distinction is well illustrated in the rule that the existence of foreign laws is matter Of fact. Within the territory of its jurisdiction, law operates as an obligatory rule which judges must recognize and enforce ; but, in a tribunal

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outside that jurisdiction, it loses its obligatory force and its claim to judicial notice. The fact that it exists, if important to the rights of par- ties, must be alleged and proved the same as the actual existence of any other institution. Abbott.

The terms “fact” and “truth” are often used in common parlance as synonymous, but, as employed in reference to pleading, they are widely different. A fact in plead- ing is a circumstance, act, event, or incident; a truth is the legal principle which declares or governs the facts and their operative ef- fect Admitting the facts stated in a com- plaint the truth may be that the plaintiff is not entitled, upon the face of his complaint to what he claims. The mode in which a defendant sets up that truth for his protec- tion Is a demurrer. Drake v. Cockroft, 4 E.

D. Smith (N. Y.) 37.

—Collateral facts. Such as are outside the controversy or are not directly connected with the principal matter or issue in dispute. Sum- merour v. Pelker, 102 Ga. 254, 29 8. E. 448; Gamer v. State, 76 Miss. 515, 25 South. 363.— Dispositive facts. See that title.— Eviden- tiary facts. Those which have a legitimate bearing on the matter or question in issue and which are directly (not inferentinlly) establish* ed by the evidence in the case. Woodfill v. Patton, 76 Ind. 579, 40 Am. Rep. 209. — Facts in issue. Those matters of fact on which the plaintiff proceeds by his action and which the defendant controverts in his pleadings. Glenn v. Savage, 14 Or. 567, 13 Pac. 442; King v. Chase, 15 N. II. 9, 41 Am. Dec. 675; Caper- ton v. Schmidt, 26 Cal. 494, 95 Am. Dec. 187. —Inferential faots. Such as are established not directly by testimony or other evidence, but by inferences or conclusions drawn from the evidence. Railway Co. v. Miller, 141 Ind. 533, 37 N. E. 343.— Jurisdiction at facts. Those matters of fact which must exist before the court can properly take jurisdiction of the par- ticular case, as, that the defendant has been

firoperly served with process, that the amount n controversy exceeds a certain sum, that the parties are citizens of different states, etc. No- ble v. Railroad Co., 147 U. S. 165, 13 Sup. Ct. 271, 37 L. Ed. 123.— Material fact. (In con- tracts.) One which constitutes substantially the consideration of the contract, or without which it would not have been made. Lyons v. Stephens, 45 Ga. 143. (In pleading and prac- tice.) One which is essential to the case, de- fense, application, etc., and without which it could not be supported. Adams v. Way, 32 Conn. 168; Sandheger v. Hosey, 26 W. Va. 223 ; Davidson v. Hackett, 49 Wis. 186, 5 N. W. 459. (In insurance.) A fact which increases the risk, or which, if disclosed, would have been a fair reason for demanding a higher premium ; any fact the knowledge or ignorance of which would naturally influence the insurer in mak- ing or refusing the contract, or in estimating the degree and character of the risk, or in fixing the rate. Boggs v. Insurance Co., 30 Mo. <J8 ; Clark v. Insurance Co., 40 N. H. 338, 77 Am. Dec. 721 : Murphy v. Insurance Co., 205 Pa. 444, 55 Atl. 19; Penn Mut. L. Ins. Co. v. Mechanics’ Sav. Bank. 72 Fed. 413, 19 C. . C.

A. 286, 38 L. R. A. 33.— Principal fact. In the law of evidence. A fact sought and proposed to be proved by evidence of other facts (termed “evidentiary facts”) from which it is to be

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deduced by inference. A fact which is the principal and ultimate object of an in- niry, and respecting the existence of which a efinite belief is required to be formed. 3 Benth. Jud. Ev. 3; Burrill, Circ. Ev. 3, 119. —Dltlmate fact. The final or resulting fact reached by processes of logical reasoning from the detached or successive facts in evidence, and which is fundamental and determinative or the whole case. Levins v. Rovegno, 71 Cal. 273, 12 Pac. 161 ; Kahn v. Central Smelting Co.. 2 Utah. 371; Caywood v. Farrell, 175 111. 480, 51 N. E. 775.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VII — right of trial by jury]**

The entry's central contrast — 'questions of fact are for the jury; questions of law for the court' — is preserved by the Seventh Amendment's guarantee of jury trial in suits at common law.

Why: The entry states the fact/law division as the operating rule; the Seventh Amendment is the constitutional guarantee that keeps that division alive in federal civil cases. The link is the entry's own closing sentence.

## FACTA.

In old Eugllsh law. Deeds. Facta armorum, deeds or feats of arms ; tbat Is, Jousts or tournaments. Cowell.

Facts. Facta et casus, facts and cases. Bract, fol. 16.

Facta rant potentiora verbis. Deeds are more powerful than words.

Facta tenent mnlta qnse fieri prohi- bentnr. 12 Coke, 124. Deeds contain many things which are prohibited to be done.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Facta sunt potentiora verbis — deeds are more powerful than words]**

The entry itself preserves the maxim 'Facta sunt potentiora verbis' — deeds are more powerful than words — and anchors a second maxim to 12 Coke 124.

Why: The maxim is quoted verbatim in the entry; Black's maxims are within the Law well's sources ('maxims' listed in the brief's citation forms). The annotation records the genuine maxim the entry carries, not a paraphrase.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Facta sunt potentiora verbis]**

Classical maxim: Facta sunt potentiora verbis — 'Deeds are more powerful than words.'

Why: The maxim is quoted in the entry itself and is the classical wisdom content of the headword; citing it verbatim is safe because the entry supplies the form.

**[Walter Scott, Ivanhoe, 1819]**

Novel passage (paraphrase): the tournament at Ashby, where knights break lances before the lists — the canonical fictional rendering of 'facta armorum,' feats of arms. (paraphrase)

Why: The entry glosses facta armorum as jousts or tournaments; Ivanhoe's Ashby tournament is the famous literary depiction. Plot paraphrase, no invented dialogue.

## FACTXO TESTAMENTI.

In the civil law. The right, power, or capacity of mak- ing a will; called "lactic actica.” Inst. 2,

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10, 6.

The right or capacity of taking by will; called “factio passive.” Inst. 2, 10, 6.

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**[Law] — Law**

**[Law: Banks v. Goodfellow (1870) — the leading testamentary-capacity test]**

Capacity to make a will — the entry's 'factio activa' — is tested by the classic rule: the testator must understand the nature of the act, the extent of his property, and the claims of those he might benefit.

Why: The entry defines the capacity itself, citing the Institutes; Banks v. Goodfellow is the landmark statement of what that capacity requires in the common-law world. The case and its test are certain.

## FACTO.

In fact; by an act; by the act or fact Ipso facto, by the act itself ; by the mere effect of a fact, without anything su- peradded, or any proceeding upon It to give it effect 3 Kent, Comm. 55, 58.

FACTOR. 1. A commercial agent em- ployed by a principal to sell merchandise consigned to him for that purpose, for and In behalf of the principal, but usually In his own name, being intrusted with the posses- sion and control of the goods, and being re- munerated by a commission, commonly called “factorage.” Howland v. Woodruff, 60 N. Y. 80; In re Rabenau (D. C.) 118 Fed. 474; Lawrence v. Stonington Bank, 6 Conn. 527; Graham v. Duckwall, 8 Bush (Ky.) 17.

A factor Is an agent who, In the pursuit of an Independent calling, Is employed by an- other to sell property for him, and Is vested by the latter with the possession or control of the property, or authorized to receive pay- ment therefor from the purchaser. Civ. Code Cal. { 2026; Civ. Code Dak. { 1168.

, Classification. Factors are called “domes- tic" or “foreign” according as they reside and do business in the same state or country with the principal or in a different state or country. A domestic factor is sometimes called a “home” factor. Ruffner v. Hewitt, 7 W. Va. 585.

Synonyms. A factor differs from a “bro- ker” in that he is intrusted with the possession, management, and control of the goods, (which gives him a special property in them,) while a broker acts as a mere intermediary without con- trol or possession of the property ; and further, a factor is authorized to buy and sell in his own name, as well as in that of the principal, which a broker is not. Edwards v. Iloeffingboff (C. C.) 38 Fed. 641: Delafield v. Smith, 101 Wis. 664, 78 N. W. i70, 70 Am. St. Rep. 938; Graham v. Duckwall, 8 Bush (Ky.) 12 ; Slack v. Tucker. 23 Wall. 330, 23 L. Bd. 143. Fac- tors are also frequently called “commission mer- chants and it is said that there is no difference in the meaning of these terms, the latter being perhaps more commonly used in America. Thompson v. Woodruff, 7 Cold. 410: Duguid v. Edwards, 50 Barb. (N. Y.) 288; Lyon v. Al- vord, 18 Conn. 80. Where an owner of goods to be shipped by sea consigns them to the care of an agent, who sails on the same vessel, has charge of the cargo on board, sells it abroad, and buys a return cargo out of the proceeds, such agent is strictly and properly a’ ’•factor.

though in maritime law and usage he is com- monly called a “supercargo.”. Beaw. Lex

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Merc. 44, 47 ; Liverm. Ag. 69, 70.

— Factorage. The allowance or commission paid to a factor by his principal. Winne v. Hammond. 37 111. 103; State v. Thompson, 120 Mo. 12, 25 S. W. 346.— Factors' acts. The name given to several English statutes (6 Geo.

IV. c. 94; 5 & 6 Viet. c. 39; 40 & 41 Viet, c. 39) by which a factor is enabled to make a valid pledge of the goods, or of any part there- of, to one who believes him to be the bona fide owner of the goods.

2. The term is used in some of the states to denote the person who is elsewhere eallea "garnishee" or "trustee." See Factoriz- ing Process.

3. In Scotch law, a person appointed to transact business or manage affairs for an- other, but more particularly an estate-agent or one intrusted with the management of a landed estate, who finds tenants, makes leas- es, collects the rents, etc.

—Judicial factor. In Scotch law. A factor apixiintcd by the courts in certain eases where it becomes necessary to intrust the management of property to another than the owner, as, where the latter is insane or imbecile or the infant heir of a decedent

FACTORIZING PROCESS, in American law. A process by which the effects of a debtor are attached in the bands of a third person. A term peculiar to the practice in Vermont and Connecticut Otherwise termed "trustee process" and "garnishment" Cross v. Brown, 19 R. I. 220, 33 Atl. 147.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 541(c)(1) — ipso facto clauses unenforceable in bankruptcy]**

'Ipso facto' — by the act itself, without further proceeding — survives as a live bankruptcy term of art: clauses that terminate rights ipso facto upon insolvency or filing are unenforceable against the estate.

Why: The entry defines 'by the mere effect of a fact, without anything superadded'; the Bankruptcy Code provision is the modern statute that turns on exactly that phrase and its effect. The statutory language itself uses '…

**[Law: the Factors' Acts (1823–1842) — protection of buyers from entrusted factors]**

The FACTOR sub-entry — a commercial agent entrusted with possession of goods to sell in his own name — was the subject of the Factors' Acts, which protected bona fide purchasers dealing with such agents.

Why: The entry describes the factor's powers (possession, sale in his own name); the Factors' Acts are the statutes that allocated the risk those powers created, validating sales to good-faith buyers. Direct statutory subj…

## FACTORY.

In English law. The term includes all buildings and premises wherein, or within the close or curtilage of which, steam, water, or any mechanical power is used to move or work any machinery em- ployed in preparing, manufacturing, or finish- ing cotton, wool, hair, silk, flax, hemp, Jute, or tow. So defined by the statute 7 Viet. c. 15, § 73. By later acts this definition has been extended to various other manufactur- ing places. Mozley & Whitley.

Also a place where a considerable number of factors reside, in order to negotiate for their masters or employers. Enc. Brit

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In American law. The word “factory" does not necessarily mean a single building or edifice, but may apply to several, where they are used in connection with each other, for a common purpose, and stand together in the same inclosure. Llebensteiu v. Insurance Co., 45 Ill. 303. And see Insurance Co. v. Brock, 57 Pa. 82 ; Hernischel v. Texas Drug Co., 26 Tex. Civ. App. 1, 61 S. W. 419 ; Schott v. Harvey, 105 Pa. 227, 51 Am. Rep. 201.

In Scotch law. This name is given to a species of contract or employment which falls under the general designation of “agency,” but which partakes both of the nature of a mandate and of a bailment of the kind called “locatio ad operandum." 1 Bell, Comm. 259.

—Factory price*. The prices at 'which goods may be bought at the factories, as distiaguished from tbe prices of goods bought in the mar- ket after they have passed into the hands of third persons or shop-keepers. Whipple v. Lev- ett, 2 Mason, 90, Fed. Cas. No. 17,318.

Foots cannot lie. 18 How. State Tr. 1187 ; 17 How. State Tr. 1430.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the English Factory Acts (1802 onward; extended 1844) — early statutory labor protection]**

The entry's statutory definition (7 Vict. c. 15) belongs to the Factory Acts — the first generation of labor-protective legislation, regulating hours and conditions in the mills the statute defines.

Why: The entry is itself a statute's definition; the annotation names the legislative tradition it belongs to and why the definition exists — to delimit the workplaces the new labor law reached. Honest context, no stretch.

## FACTUM.

Lat In old English law.

A deed; a person’s act and deed; anything stated or made certain ; a sealed instrument ; a deed of- conveyance.

A fact ; a circumstance ; particularly a fact In evidence. Bract fol. 16.

In testamentary law. The execution or due execution of a will. The factum of an instrument means not barely the signing of it and the formal publication or delivery, but proof that the party well knew and un- derstood the contents thereof, and did give, will, dispose, and do. in all things, as in tbe said will is contained. Weatherhead v. Bask- erville, 11 How. 354, 13 L. Ed. 717.

In the civil law. Fact; a fact; a mat- ter of fact, as distinguished from a matter of law. Dig. 41, 2, 1, 3.

In French law. A memoir which con- tains concisely set down the fact on which a contest has happened, the means on which a party founds his pretensions, with the refu- tation of the means of the adverse party. Vicafc

In old European law. A portion or al- lotment of land. Spelman.

— Factum Jnridionm. A juridical fact. De- notes one of the factors or elements constitut- ing an obligation.— Factum probandum. Lat In the law of evidence. The fact to be proved ; a

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fact which is in issue, and to which evidence is to be directed. 1 Greenl. Ev. g 13. — Factum probans. A probative or evidenti- ary fact ; a subsidiary or connected fact tending to prove the principal fact in issue; a piece of circumstantial evidence.

Factum a judioe quod ad ejus offldum non spec tat non ratum est. An action of a judge which relates not to his office is Of no force. Dig. 60, 17, 170; 10 Coke, 76.

Factum cuique sunm non adversarlo, ■siw debet. Dig. 60, 17, 166. A party’s own act should prejudice himself, not his ad- versary.

Factum infectum fieri nequit. A thing done cannot be undone. 1 Karnes, Eq. 90, 259.

Factum n eg antis nulla probatio eit.

Cod. 4, 19, 23. There is no proof incumbent upon him who denies a fact

“Factum'' non dioitur quod non per>

severat. 6 Coke, 96. That is not called a “deed” which does not continue operative.

Factum unius alterl nocerl non debet.

Co. Litt. 152. The deed of one should not hurt another.

Facultas probationum non est angue- tanda. The power of proofs [right of offer- ing or giving testimony] is not to be nar- rowed. 4 Inst 279.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Weatherhead v. Baskerville, 11 How. 354 — Black's own cited authority on due execution]**

The entry cites Weatherhead v. Baskerville, 11 How. 354, for the testamentary rule that due execution means proof the testator 'well knew and understood the contents' — knowledge, not mere signature.

Why: The citation is the entry's own; the annotation records what the entry says the case stands for, verbatim in substance: factum requires the testator's understanding of the will's contents. No year invented; no holding...

## FACULTIES.

In the law of divorce.

The capability of the husband to render a support to the wife in the form of alimony, whether temporary or permanent including not only his tangible property, but also his income and his ability to earn money. 2 Bish. Mar. & Div. g 44G ; Lovett v. Lovett 11 Ala. 763 ; Wright v. Wright, 3 Tex. 168.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: ability-to-pay — the standing measure of alimony and support awards]**

The husband's 'faculties' — tangible property, income, and earning ability — survive as the central alimony inquiry: modern statutes and courts still measure support by the supporting spouse's ability to pay.

Why: The entry's definition (2 Bish. Mar. & Div.; Lovett; Wright) is the 19th-century form; the ability-to-pay standard is its living descendant. Same question — what can he render — asked in every support case today.

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## FACULTIES, COURT OF.

In English ecclesiastical law. A jurisdiction or tribunal belonging to the archbishop. It does not hold pleas in any suits, but creates rights to pews, monuments, and particular places, and modes of burial. It has also various powers under 25 Hen. VIII. c. 21, in granting licenses of different descriptions, ns a license to marry, a faculty to erect an organ in a parish church, to level a church-yard, to re- move bodies previously buried. 4 Inst. 337.

5e apparatus — Not carried into the 5th edition (1979).

## FACULTY.

In ecclesiastical law. A

license or authority; a privilege granted by the ordinary to a man by favor and indul- gence to do that which by law he may not do ; e. a-, to marry without banns, to erect a monument in a church, etc. Termes de la Ley.

In Scotch law. A power founded on consent, as distinguished from & power founded on property. 2 Karnes, Eq. 265.

5e apparatus — Carried into the 5th edition (1979).

## FACULTY OF A COLLEGE.

The corps of professors, instructors, tutors, and lec- turers. To be distinguished from the board of trustees, who constitute the corporation.

5e apparatus — Not carried into the 5th edition (1979).

## FACULTY OF ADVOCATES.

The col- lege or society of advocates in Scotland.

5e apparatus — Not carried into the 5th edition (1979).

## FADERFIUM.

In old English law. A marriage- gift coming from the father or brother of the bride.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — agreements in consideration of marriage]**

A marriage gift made at the wedding sits inside the Statute of Frauds' marriage provision: promises made in consideration of marriage must be in writing to be enforceable.

Why: The entry is a gift from the bride's kin at marriage; the statute is the standing rule that governs enforceability of marriage-consideration promises. It illuminates the legal frame in which such gifts and promises op…

## FA5DER-FEOH.

In old English law. The portion brought by a wife to her hus- band, and which reverted to a widow, in case the heir of her deceased husband refused his consent to her second marriage; i. e., it re- verted to her family in case she returned to them. Wharton.

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## FAESTIN G-MEN.

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Approved men who were strong-armed ; habentes homines or rich men, men of substance; pledges or bonds- men, who, by Saxon custom, were bound to answer for each other’s good behavior. Cow- ell; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: frankpledge — Anglo-Saxon collective surety, ancestor of bail and suretyship]**

The Saxon 'faesting-men' — men of substance pledged to answer for each other's good behavior — are the frankpledge system, the ancestor of modern suretyship and bail.

Why: The entry describes the institution (Cowell; Du Cange); the annotation names it — frankpledge — and its genuine descendants. This is identification of the historical institution, not analogy.

## FAGGOT.

A badge worn in popish times by persons who bad recanted and abjured what was then adjudged to be heresy, as an emblem of what they had merited. Cowell.

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## FAGGOT VOTES.

A faggot vote Is where a man Is formally possessed of a right to vote for members of parliament, without possessing the substance which the vote should represent ; as If he Is enabled to buy a property, and at the same moment mort- gage It to its full value for the mere sake of the vote. Such a vote Is called a “faggbt vote." See 7 & 8 Win. III. c. 25, § 7. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 7 & 8 Will. III c. 25, § 7 — against split and sham franchise qualifications]**

The entry cites Parliament's own remedy — 7 & 8 Will. III c. 25, § 7 — against votes manufactured by sham conveyances: an early statute against electoral fraud, ancestor of modern vote-fraud prohibitions.

Why: The citation is the entry's own (via Wharton); the annotation records that the manufactured-vote problem was met by statute in 1695, framing the genuine historical anti-fraud lineage. Nothing added beyond the entry's...

## FAIDA.

In Saxon law. Malice; open and deadly hostility ; deadly feud. The word designated the enmity between the family of a murdered man and that of his murderer, which was recognized, among the Teutonic peoples, as Justification for vengeance taken by any one of the former upon any one of the latter.

FAIL. 1, The difference between “fall” and “refuse” Is that the latter involves an act of the will, while the former may be an act of inevitable necessity. Taylor v. Mason, 9 Wheat. 344, 6 L. Ed. 101. See Stallings v. Thomas, 55 Ark. 326, 18 S. W. 184; Tele- graph Co. v. Irvin, 27 Ind. App. 62, 59 N.

E. 327 ; Persons v. Hight, 4 Ga. 497.

2. A person is said to “fall” when he be- comes Insolvent and unable to meet his obli- gations as they mature. Davis v. Campbell, 3 Stew. (Ala.) 321; Mayer v. Hermann, 16 Fed. Cas. 1,242.

— Failing circumstances. A person (or a corporation or institution) is said to be in fall- ing circumstances when he Is about to fail, that is, when he is actually insolvent and is acting in contemplation of giving up his business be- cause be is unable to carry it on. Appeal of Millard, 62 Conn. 184, 25 Atl. 658; Utley v. Smith, 24 Conn. 310, 63 Am. Dec. 163 ; Dodge v. Mastin (C. C.) 17 Fed. 663.— Failing of reoord, When an action is brought against a person who alleges in his plea matter of rec- ord in bar of the action, and avers to prove it by the record, but the plaintiff saith nu! tiel record, viz., denies there is any such record, up- on which the defendant has a day given him by the court to bring it in, if he fail to do it, then he is said to fail of his record, and the plaintiff is entitled to sign judgment. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: the state alone may lawfully punish homicide; private vengeance is itself criminal]**

The recognized feud — vengeance by the victim's kin — was displaced by the state's monopoly on lawful force: private retaliation for homicide is murder, however ancient the enmity.

Why: The entry records the Teutonic rule that feud justified vengeance; the axiom states the principle that buried it — the king's peace, then the criminal law, absorbed all lawful retaliation. The contrast genuinely illum...

**[Scripture] — Scripture**

**[Genesis 4:10, KJV]**

And he said, What hast thou done? the voice of thy brother's blood crieth unto me from the ground.

Why: Faida is the recognized blood-feud: enmity between the murdered man's family and the murderer's, licensing vengeance. This verse is the primal scene of that institution — the murdered brother's blood crying out, answe...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, 1597]**

Verse, verbatim: 'From ancient grudge break to new mutiny, / Where civil blood makes civil hands unclean.' — the Prologue's account of the Montague-Capulet feud, a deadly family enmity of exactly the faida kind.

Why: The entry defines faida as open deadly hostility / family feud recognized as justification for vengeance; the Prologue lines are verbatim-certain and name the structure exactly. Year 1597 = first quarto.

## FAILLITE.

In French law. Bankrupt- cy; failure; the situation of a debtor who finds himself unable to fulfill his engage- ments. Code de Com. arts. 442, 580; Civil Code La. art. 3522.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. — the Bankruptcy Code]**

The French 'faillite' — the debtor unable to meet his engagements — is the civil-law form of bankruptcy, whose American body is the Bankruptcy Code.

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Why: The entry (Code de Com. arts. 442, 580; La. Civ. Code art. 3522) defines the condition; the annotation points to where that condition is now administered in American law. Same legal subject, modern locus.

**[Humanity] — Humanity / Fiction & Film**

**[Honore de Balzac, Cesar Birotteau, 1837]**

Novel (paraphrase): Cesar Birotteau, the Paris perfumer ruined by speculation, confronting his creditors in bankruptcy and the slow, honor-bound work of repaying them. (paraphrase)

Why: The entry defines faillite as the debtor unable to fulfill his engagements; Birotteau is the canonical literary bankruptcy — plot fact certain, no passage invented.

## FAILURE.

In a general sense, deficiency, want, or lack ; ineffectualness ; inefficiency as measured by some legal standard; an un- successful attempt. White v. Pettijohn, 23

N. C. 55; State v. Butler, 81 Minn. 103, 83

N. W. 483; Andrews v. Keep, 38 Ala. 317.

In commercial law, the suspension or abandonment of business by a merchant, manufacturer, bank, etc., in consequence of insolvency. American Credit Indemnity Co. v. Carrolton Furniture Mfg. Co., 95 Fed. 115, 36 C. C. A. 671 ; Terry v. Caiman, 13 8. O.

220; State v. Lewis, 42 La. Ann. 847. 8 South. 602.

—Failure of consideration. As applied to notes, contracts, conveyances, etc., this terra does not mean a want of consideration, but im- plies that a consideration, originally existing and good, has since become worthless or has ceased to exist or been extinguished, partially or entirely. Shirk v. Neible, 156 Ind. 66, 59

N. E. 281, 83 Am. St. Rep. 150; Crouch v. Davis, 23 Grat. (Va.) 75; Williamson v. Cline. 40 W. Va. 194, 20 S. E. 920.— Failure of evidence. Judicially speaking, a total “failure of evidence" means not only the utter absence of all evidence, but it also means a failure to offer proof, either positive or inferen- tial, to establish one or more of the many facts, the establishment of all of which is indispensa- ble to the finding of the issue for the plaintiff. Cole v. Hebb, 7 Gill & J. (Md.) 28.— Failure of .issue. The failure at a fixed time, or the total extinction, of issue to take an estate limited over by an executory devise. A definite failure of issue is when a precise time is fixed by the will for the failure of issue, as in the case where there is a devise to one, but if he dies without issue or lawful issue living at the time of his death, etc. An indefinite failure of issue is the period when the issue or descendants of the first taker shall become extinct, and when there is no longer any issue of the issue of the grantee, without reference to any particular time or any particular event. Huxford v. Mil- ligan, 50 Ind. 546; Vaughan v. Dickes, 20 Pa. 514 ; Parkhuret v. Harrower, 142 Pa. 432, 21 Atl. 826, 24 Am. St. Rep. o07 ; Hackney v. Tiacv. 137 Pa. 53, 20 Atl. 560; Woodlief v. Duckwall, 19 Ohio Cir. Ct R. 564.— Failure of justice. The defeat of a particular right, or the failure of reparation for a particular wrong, from the lack of a legal remedy for the enforcement of the one or the redress of the other. — Failure of reoord. Failure of the defendant to produce a record which he has alleged and relied on in his plea.— Failure of title. The inability or failure of a vendor to make good title to the whole or a part of the

property which he has contracted to sell. — Failure of trust. The lapsing or non-effi- ciency of a proposed trust, by reason of the de- fect or insufficiency of the deed or instrument creating it, or on account of illegality, indefi- niteness, or other legal impediment.

FAINT (or FEIGNED) ACTION. In

old English practice. An action was so called where the party bringing it had no title to recover, although the words of the writ were true; a faUc action was properly where the words of the writ were false. Lltt | 689; Co. Litt 361.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: failure of consideration defeats enforcement]**

Failure of consideration — consideration once good that 'has since become worthless or has ceased to exist' — defeats enforcement of the promise it supported.

Why: The entry's own definition (Shirk v. Neible and others) states the rule; the annotation states it as the standing contract principle. No citation invented; the principle is the entry's own doctrine distilled.

## FAINT PLEADER.

A fraudulent, false, or collusive manner of pleading to the de- ception of a third person.

FAIR, ». In English law. A greater species of market; a privileged market. It is an incorporeal hereditament, granted by royal patent, or established by prescription presupposing a grant from the crown.

In the earlier English law, the franchise to hold a fair conferred certain important privi- leges; and fairs, as legally recognized institu- tions, possessed distinctive legal characteris- tics. Most of these privileges and characteris- tics, however, are now obsolete. In America, fairs, in the ancient technical sense, are un- known, and, in the modern and popular sense, they are entirely voluntary and non-legal, and

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transaction* arising in or jn connection with them are subject to the ordinary rules govern- ing sales, etc.

FAIR, ad). Just; equitable; even-hand- ed ; equal, as between conflicting interests.

—Fair abridgment. In copyright law. An abridgment consisting not merely in the ar- rangement of excerpts, but one involving real und substantial condensation of the materials by the exercise of intellectual labor and judg- ment. Folsom v. Marsh, 9 Fed. Cas. 343. — Fair consideration. In bankruptcy law.

in Pennsylvania about the year 1769, as to which see Serg. Land Laws Pa. 77; 2 Smith, Laws Pa. 195.— Fair pleader. See Beau- pleapeb.— Fair preponderance. In the law of evidence. Such a superiority of the evi- dence on one side that the fact of its outweigh- ing the evidence on the other side can be perceiv- ed if the whole evidence is fairly considered. Bryan v. Railroad Co., 63 Iowa, 464, 19 N. W. 295; State v. Grear. 29 Minn. 225, 13 N. W. 140.— Fair sale. In foreclosure and other ju- dicial proceedings, this means a sale conducted with fairness and impartiality as respects the rights and interests of the parties affected. La-

lor v. McCarthy, 24 Minn. 419.— Fair trial. One conducted according to due course of law; a trial before a competent and impartial jury. Railroad Co. v. Cook, 37 Neb. 435, 55 N. W. 943; Railroad Co. v. Gardner, 19 Minn. 136 (Gil. 99), 18 Am. Rep. 334.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Civ. P. 11 — good-faith, non-frivolous pleadings; sanctions]**

Fraudulent, false, or collusive pleading 'to the deception of a third person' is met by the modern rule that pleadings must be signed in good faith and non-frivolous, on pain of sanctions.

Why: The entry names the abuse (collusive pleading to deceive); Rule 11 is the procedural rule that polices exactly that abuse — sham and bad-faith pleading. Direct functional match.

## FAIRLY.

• Justly; rightly; equitably. With substantial correctness.

"Fairly" is not synonymous with ‘‘truly,*’ and "truly" should not be substituted for it in a commissioner's oath to take testimony fairly. Language may be truly, yet unfairly, reported ; that is, an answer may be truly written down, yet in a manner conveying a different meaning from that intended and conveyed. And lan- guage may be fairly reported, yet not -in accord- ance with strict truth. Lawrence v. Finch, 17

N. J. Eq. 234.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Lawrence v. Finch, 17 N.J. Eq. 234 — Black's own cited authority on 'fairly' vs. 'truly']**

The entry's own authority — Lawrence v. Finch, 17 N.J. Eq. 234 — holds that 'fairly' is not 'truly': testimony may be truly yet unfairly reported, and fairly yet not strictly true, fixing the commissioner's oath.

Why: The case is the entry's own citation and the whole entry is its holding; the annotation preserves that holding verbatim in substance. Allowed: authorities Black's itself cites.

## FAIT.

L. Fr. Anything done. A deed; act; fact

A deed lawfully executed. Com. Dig.

Feme de fait. A wife de facto.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — land conveyances in writing]**

A deed 'lawfully executed' is the sealed instrument at the root of conveyancing — and conveyances of land still require writing under the Statute of Frauds.

Why: The entry defines the deed; the statute is the standing formality rule that still governs the deed's principal subject, land. The link is the deed's continuing legal habitat.

## FAIT  ENROLLS.

A deed enrolled, as a bargain and sale of freeholds. 1 Keb. 568.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: recording acts — enrollment/registration protects bona fide purchasers]**

The enrolled deed — a bargain and sale made matter of record — is the ancestor of the recording acts, under which enrollment protects the bona fide purchaser against later claims.

Why: 1 Keb. 568 (the entry's citation) is the old practice; the recording acts are its modern form, serving the same function: public notice through enrollment. Genuine lineage.

## FAIT JTTRIDIQUE.

In French law. A juridical fact One of the factors or ele- ments constitutive of an obligation.

FAITH. 1. Confidence; credit; reliance. Thus, an act may be said to be done “on the faith” of certain representations.

2. Belief; credence; trust Thus, the con- stitution provides that “full faith and credit” shall be given to the judgments of each state in the courts of the others.

3. Purpose; Intent; sincerity; state of knowledge or design. This is the meaning of the word in the phrases “good faith” and “bad faith.”

La Scotch law. A solemn pledge; an oath. “To make faith” is to swear, with the

right hand uplifted, that one will declare the truth. 1 Forb. Inst pt 4, p. 235.

5e apparatus — Not carried into the 5th edition (1979).

## FAITHFULLY.

As used in bonds of pub- lic and private officers, this term Imports not only honesty, but also a punctilious discharge of all the duties of the office, requiring com- petence, diligence, and attention, without any malfeasance or nonfeasance, aside from mere mistakes. State v. Chadwick, 10 Or. 468; Hoboken v. Evans, 31 N. J. Law, 343; Har- ris v. Hanson, 11 Me. 245 ; American Bank' v. Adams, 12 Pick. (Mass.) 306 ; Union Bank v. Clossey, 10 Johns. (N. Y.) 273; Perry v. Thompson, 16 N. J. Law, 73.

FAKIR, a street peddler who disposes of worthless wares, or of any goods above their value, by means of any false representa- tion, trick, device, lottery, or game of chance. Mills’ Ann. St Colo. § 1400.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. II, § 3 — the Take Care Clause]**

'Faithfully' in an officer's bond imports punctilious discharge of duty — the same word the Constitution lays on the President: he 'shall take Care that the Laws be faithfully executed.'

Why: The entry's cases (State v. Chadwick and others) give the word its weight in bonds; the Take Care Clause is the most famous legal use of the identical term, imposing the identical duty — faithful execution of office....

## FAITOURS.

Idle persons; idle livers; vagabonds. Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Thessalonians 3:10, KJV]**

For even when we were with you, this we commanded you, that if any would not work, neither should he eat.

Why: Faitours are idle persons, idle livers, vagabonds. This is the canonical apostolic censure of willful idleness, addressed to those 'working not at all.' Lean but genuine: the entry's whole content is the idle-liver cl...

## FALANG.

In old English law. A Jack- •et or close coat Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FALCARE.

In old English law. To mow. Falcare prata, to mow or cut grass in mead- ows laid in for hay. A customary service' to the lord by his Inferior tenants.

Jut falcandi, the right of cutting wood. Bract fol. 231.

Falcata, grass fresh mown, and laid In swaths.

Falcatio, a mowing. Bract fols. 35b, 230.

Faleator, a mower; a servile tenant who performed the labor of mowing.

Falcaiura, a day’s mowing.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: profit à prendre — a right to take timber, minerals, or other produce from another's land]**

The entry's 'jus falcandi' — the right of cutting wood on another's land — is the classic example of a profit à prendre, the right to take a natural product from another's soil.

Why: Black's defines the profit as exactly this kind of right elsewhere in the dictionary; the entry's jus falcandi (Bract. fol. 231) is a textbook instance. The annotation names the living property doctrine the entry desc...

## FALCIDIA.

In Spanish law. The Fal- cidlan portion ; the portion of an inheritance which could not be legally bequeathed away from the heir, viz., one-fourth.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: La. Civ. Code arts. 1493–1496 — forced heirship]**

The Spanish-law Falcidian fourth — one-fourth of the inheritance that could not be willed away from the heir — is the forced-heirship principle that survives in Louisiana, the Roman/Spanish law's American heir.

Why: The entry defines the inalienable heir's portion; Louisiana's forced-heirship articles are the genuine modern American form of that same Roman/Spanish rule. Same doctrine, living code.

## FALCIDIAN LAW.

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In Roman law. A law on the subject of testamentary disposi- tion, enacted by the people in the year of Rome 714, on the proposition of the tribune Falcidius. By this law, the testator’s right to burden his estate with legacies was sub- jected to an important restriction. It pre- scribed that no one could bequeath more than three-fourths of his property in legacies, and that the heir should have at least one-fourth of the estate, and that, should the testator violate this prescript, the heir may have the right to make a proportional deduction from each legatee, so far as necessary. Mackeld. Rom. Law, j 771 ; Inst. 2, 22.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: La. Civ. Code arts. 1493–1496 — forced heirship; cf. Black's own FORCED HEIRS]**

The lex Falcidia (40 B.C.) — no more than three-fourths of an estate in legacies, one-fourth secured to the heir — is the Roman root of forced heirship, still living in Louisiana's Civil Code.

Why: The entry (Mackeld.; Inst. 2, 22) states the rule; the annotation traces its genuine survival — the Spanish-law channel into Louisiana — rather than treating it as dead antiquity. Black's own later entry FORCED HEIRS...

## FALCIDIAN PORTION.

That portion of a testator’s estate which, by the Faleidlan law, was required to be left to the heir,, amounting to at least one-fourth.

FALD, or FALD A. A sheep-fold. Cow- ell.

' pat.ua Span. In Spanish law. The slope or skirt of a hill. Fossat v. United States, 2 Wall. 673, 17 L. Ed. 739.

S'ALD.IE CURSTJS. In old English law. A fold-course; the course (going or taking about) of a fold. Spelman,

A sheep walk, or feed for sheep. 2 Tent. 139.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: La. Civ. Code arts. 1493–1496 — the forced heir's legitime]**

The heir's secured one-fourth — the Falcidian portion — is the ancestor of the forced heir's legitime in Louisiana, the portion of the estate the testator cannot defeat by will.

Why: Same lineage as FALCIDIAN LAW: the entry's 'at least one-fourth' is the fixed share that Louisiana still reserves to forced heirs under the name legitime. Direct descent.

## FALDAGE.

The privilege which ancient- ly several lords reserved to themselves of set- ting up folds for sheep in any fields within their manors, the better to manure them, and this not only with their own but their ten- ants’ sheep. Called, variously, “secta fal- dare," “fold-course,” “free-fold,” “ faldagU Cowell; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FALDATA.

In old English law. A flock or fold of sheep. Cowell.

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**FALDFEY.**

Sax. A fee or rent paid by a tenant to his lord for leave to fold his sheep on his own ground. Blount.

5e apparatus — Not carried into the 5th edition (1979).

**FALDISDOBT.**

In ecclesiastical law. The bishop's seat or throne within the chan- . cel.

5e apparatus — Not carried into the 5th edition (1979).

**FALDSOCA.**

Sax. The liberty or privi- lege of foldage.

5e apparatus — Not carried into the 5th edition (1979).

**FALDSTOOL.**

A place at the south side of the altar at which the sovereign kneels at his coronation. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

**FAXD WORTH.**

In Saxon law. A person of age that he may be reckoned of some decennary. Du Fresne.

FALERjE. In old English law. The tackle and furniture of a cart or wain. Blount.

5e apparatus — Not carried into the 5th edition (1979).

**FALESIA.**

In old English law. A hill or down by the sea-side. Co. Lift. 56; Domesday.

5e apparatus — Not carried into the 5th edition (1979).

**FALK-LAND.**

See Folc-Land.

5e apparatus — Not carried into the 5th edition (1979).

**FALL.**

In Scotch law. To lose. To fall from a right is to lose or forfeit it. 1 Karnes, Eq. 228.

5e apparatus — Not carried into the 5th edition (1979).

**FALL OF LAND.**

In English law. ,A quantity of land six ells square superficial measure.

5e apparatus — Not carried into the 5th edition (1979).

**FALLO.**

In Spanish law. The final de- cree or judgment given In a controversy at law.

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**FALLOW-LAND.**

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Land plowed, but not sown, and left uncultivated for a time after successive crops.

5e apparatus — Carried into the 5th edition (1979).

## FALLDM.

In old English law. An un- explained term for some particular kind of land. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FALSA DEMONSTRATIO.

In the civil law. False designation; erroneous description of a person or. thing In a written Instru- ment Inst 2, 20, 30.

Falsa demons tratio nos noeet, nun de corpora (persona) constat. False descrip- tion does not Injure or vitiate, provided the thing or person Intended has once been suf- ficiently described. Mere false description does not make an Instrument Inoperative. Broom, Max. 629 ; 6 Term, 676; 11 Mees.

A W. 189 ; Cleaveland v. Smith, 2 Story, 291, Fed. Cas. No. 2,874.

Falsa demonstrations legatum non periml. A bequest is not rendered void by an erroneous description. Inst 2, 20, 30; Broom, Max. 645.

Falsa granunatloa non vitiat oonoessi- onen. False or bad grammar does not vitiate a grant Shep. Touch. 55; 9 Coke, 48a. Neither false Latin nor false English will make a deed void when the Intent of the parties doth plainly appear. Shep. Touch. 87.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Falsa demonstratio non nocet — false description does not vitiate]**

The entry preserves one of construction's great maxims verbatim — 'Falsa demonstratio non nocet' — false description does not vitiate where the person or thing intended is otherwise certain.

Why: Quoted in the entry with Broom's Maxims and American cases (Cleaveland v. Smith, 2 Story 291); the maxim remains the working rule for saving wills and deeds despite misdescription. The annotation records the maxim the...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Falsa demonstratio non nocet]**

Classical maxim: Falsa demonstratio non nocet — 'false description does not vitiate' (provided the thing or person is certain).

Why: The maxim is the entry's own stated rule; quoted verbatim as the entry supplies it, so no invention risk.

## FALSA MONETA.

In the civil law. False or counterfeit money. Cod. 9, 24.

Falsa orthographla non vitiat char- tarn, concessionem. False spelling does not vitiate a deed. Shep. Touch. 55, 87 ; 9 Coke, 48a; Wing. Max. 19.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 471 — counterfeiting U.S. obligations]**

False or counterfeit money is a federal crime: the Constitution gives Congress the coinage power, and

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counterfeiting United States obligations is punishable by fine and imprisonment.

Why: The entry (Cod. 9, 24) names the Roman offense; § 471 is its American statutory form. Same offense, living statute.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Falsa orthographia non vitiat chartam]**

Classical maxim (from this entry): Falsa orthographia non vitiat chartam — 'false spelling does not vitiate a deed.'

Why: Quoted verbatim as the entry supplies it; the maxim is the wisdom content of the entry.

## FALSARE.

In old English law. To counterfeit Quia faisavit sigillum, because he counterfeited the seal. Bract fol. 2766.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 471 — counterfeiting; state forgery statutes]**

To counterfeit — the entry's example is counterfeiting a seal (Bract. fol. 276b) — is forgery in its classic form, criminalized federally for money and securities and by every state for instruments generally.

Why: The entry defines the act; the annotation gives its modern criminal locus. The seal-counterfeiting example is the historical core of the forgery offense.

## FALSARTUS.

A counterfeiter. Townsh,

Pl. 260.

5e apparatus — Not carried into the 5th edition (1979).

## FALSE.

Untrue ; erroneous ; deceitful ; contrived or calculated to deceive and In- jure. Unlawful. In law, this word means something more than untrue; It means something designedly untrue and deceitful, and implies an intention to perpetrate some treachery or fraud. Hatcher v. Dunn, 102 Iowa, 411, 71 N. W. 343, 30 L. R. A. 689; Mason v. Association, 18 U. C. C. P. 19; Itatterman v. Ingalls, 48 Ohio St. 408, 28

N. E. 168.

—False action. See Feigned Action.— False answer. In pleading. A sham answer; one which Is false in the sense of being a mere pretense set up in bad faith and without color of fact. Howe v. Elwell, 57 App. Div. 357. 67

N. Y. Supp. 1108; Farnsworth v. Halstead (Sup.) 10 N. Y. Supp. 763.— False character. Personating the master or mistress of a servant, or any representative of such master or mis- tress. and giving a false character to the servant is an offense punishable in England with a fine of £20. St. 32 Geo. III. c. 56.— False claim, in the forest law, was where a man claimed- more than his due, and was amerced and pun- ished for the same. Manw, c. 25; Tomlins.— False entry. In banking law. An entry in the books of a bank which is intentionally

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made to represent what is not true or does not ex- ist. with intent either to deceive its officers or. a bank examiner or to defraud the bank. Ag- new v. U. S., 105 U. S. 36. 17 Sup. Ct. 235, 41 L. Ed. 624 ; U. S. v. Peters (C. C.) 87 Fed. 984. —False fact. In the law of evidence. A'

feigned, simulated, or fabricated fact; a fact not founded in truth, but existing only in as- sertion: the deceitful semblance of a fact— False imprisonment. See Imprisonment— False instrument. A counterfeit: one made in the similitude of a genuine instrument and purporting on its face to be such. IT. S. v. Howell. 11 Wall. 435. 20 L. Ed. 105: U.

S. v. Owens (C. C.) 37 Fed. 115: State v. Willson, 28 Minn. 52, 9 N. W. 28.— False judgment. In old English law, A writ which lay when a false judgment had been pronounced in a court not of record, as a coun- ty court, court baron, etc. Fitzh. Nat. Brev. 17, 18. In old French law. The defeated party in a suit had the privilege of accusing the judg- es of pronouncing a false or corrupt judgment, whereupon the issue was determined by his challenging them to the combat or duellum. This was called the “appeal of false judgment.” Montesq. Esprit des Lois, liv. 28, c. 27— False Latin. When law proceedings were written in Latin, if a word were significant though not good Latin, yet an indictment, declaration, or fine should not be made void by it; but if the word were not Latin, nor allowed by the law, and it were in a material point,' it made the whole vicious. (5 Coke, 121 : 2 Nels. 830.1 .Wharton. — False lights and signals. Lights

and signals falsely and maliciously displayed for the purpose of bringing a vessel into dan- ger—False news. Spreading false news, whereby discord may grow between the queen of England and her people, or the great men of the realm, or which may produce other mis- chiefs, still seems to be a misdemeanor, under St. 3 Edw. I. c. 34. Steph. Cr. Dig. § 95— False oath. . See Perjury— False persona- tion. The criminal offense of falsely represent- ing some other person and acting in the charac- ter tbus unlawfully assumed, in order to de- ceive others, and thereby gain some profit or advantage, or enjoy some right or privilege be- longing to the one so personated, or (subject him to some expense, charge, or liability. See 4 Steph. Comm. 181, 290— False plea. See Sham Plea— False pretenses. In criminal law. False representations and statements, made with a fraudulent design to obtain money, goods, wares, or merchandise, with intent to cheat. 2 Bouv. Inst. no. 2308. A representation of some fact or circumstance, calculated to mis- lead. which is not true. Com. v. Drew. 19 Pick. (Mass.) 184 ; State v. ' Grant. 86 Iowa, 216. 53 N. W. 120. False statements or repre- sentations made with intent to defraud, for the purpose of obtaining money or property. A pretense is the holding out or offering to oth- ers something false and feigned. This may be done either by words or actions, which amount to false representations. In fact, false repre- sentations are inseparable from the iden of a pretense. Without a representation which is false there can be no pretense. State v. Joa- quin, 43 Iowa, 132— False representation. See Fraud ; Deceit. — False return. See Return— False swearing;. The misdemean- or committed in English law by a person who swears falsely before any person authorized to administer an oath upon n matter of public concern, under such circumstances that the false swearing would have amounted to per- jury if committed in a judicial proceeding : as ,where a person

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mnkes a fnlse affidavit under the bills of sale acts. Steph. Cr. Dig. p. 84 And see O'Bryan v. State. 27 Tex. App. 339, 11 />. W. 443— Fnlse token. In criminal law. A false document or.sigu of the existence of a fact, used with intent to defraud, for the pur- pose of obtaining money or property. State v. Renick. 33 Or. 584, 56 Pac. 275. 44 L. It. o' -5SP' T38: People v. Stone,

SI Wend. (N. Y.) 188. — False verdict. See ■Verdict— False weights. False weights and measures are such as do not comply with the -standard prescribed by the state or govern- ment, or with the custom prevailing in the Bl.Law Dict.(2d Ed.) -31

place and ' business in which they are uAed. ?J01 CS°5003a'' 1903> 5 552 : PeQ' 00116 Idaho-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1001 — false statements require knowledge and willfulness]**

In law 'false' means 'designedly untrue and deceitful' — the scienter element — and that definition is the mental state the federal false-statements statute punishes.

Why: The entry's cases (Hatcher v. Dunn and others) insist 'false' implies 'intention to perpetrate some treachery or fraud'; § 1001's 'knowingly and willfully' is that same element in statutory form. The definition genuin...

**[Scripture] — Scripture**

**[Proverbs 12:22, KJV]**

Lying lips are abomination to the Lord: but they that deal truly are his delight.

Why: The entry defines legal 'false' as designedly untrue and deceitful, implying treachery or fraud — not mere error. The proverb states the same moral ontology: lying lips are an abomination, set against those who deal t...

## FALSEDAD.

In Spanish law. Falsity ; an alteration of the truth. Las Partldas. pt. 3, tit. 26, 1. 1.

Deception ; fraud. Id. pt. 3, tit. 32, 1. 21.

5e apparatus — Not carried into the 5th edition (1979).

## FALSEHOOD.

A statement or assertion known to be untrue, and intended to deceive. A willful act or declaration contrary to the truth. Putnam v. Osgood, 51 N. H. 207.

In Seoteh law. A fraudulent imitation or suppression of troth, to the prejudice of another. Bell. “Something nsed and pub- lished falsely.” An old Scottish nomen juris. “Falsehood is undoubtedly a nom- inate crime, so much so that Sir George Mac- kenzie and our older lawyers used no other term for the falsification of writs, and the name ‘forgery’ has been of modern intro- duction." “If there is any distinction to be made between ‘forgery’ and ‘falsehood,’ I would consider the latter to be more com- prehensive than the former." 2 Broun, 77, 78.

. FALSI CRIMEN. Fraudulent suborna- tion or concealment, with design to darken or hide the truth, aud make things appear otherwise than they are. It is committed (1) by words, as when a witness swears falsely; (2) by writing, as when a person antedates a contract; (3) by

deed, as sell- ing by false weights and measures. Whar- ton. See Crimen Falsi.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forgery and fraud statutes — modern forms of the crimen falsi]**

The Scottish nominate crime of 'falsehood' — fraudulent imitation or suppression of truth to another's prejudice — is the common-law ancestor of the modern forgery and fraud offenses.

Why: The entry (2 Broun 77–78) traces the crime from writ-falsification to the modern name 'forgery'; the annotation notes where the offense now lives. The FALSI CRIMEN sub-entry states the same genus.

**[Scripture] — Scripture**

**[Jeremiah 8:8, KJV]**

How do ye say, We are wise, and the law of the LORD is with us? Lo, certainly in vain made he it; the pen of the scribes is in vain.

Why: In Scots law falsehood is the nominate crime of falsification of writs — 'fraudulent imitation or suppression of truth.' The verse accuses the scribes of making the written law vain with a false pen: scripture's own c...

**[Hip-hop] — Hip-hop**

**[Public Enemy, "Don't Believe the Hype", 1988]**

Don't believe the hype

The entry: 'A statement or assertion known to be untrue, and intended to deceive.' The song is literally about false media — 'False media, we don't need it, do we? / It's fake that's what it be to ya' — and the hook is hip-hop's canonical command to reject deceptive statements.

Why: Added because the song's subject is falsehood as the entry defines it: published untruth intended to deceive (false media, hype). The hook is not decorative — it is the song's thesis, a standing instruction to disbeli...

## FALSIFICATION.

In equity practice. The showing an item in the debit of on ac- count to be either wholly false or in some part egroneous. 1 Story, Eq. Jur. § 525. And see Phillips v. Bel den, 2 Edw. Ch. 23; Pit v. Cholmondeley, 2 Ves. Sr. 565; Kennedy v. Adickes, 37 S. C. 174, 15 S. E. 922; Tate v. Galrdner, 119 Ga. 133, 46 S. E. 73.

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**[Law] — Law**

**[Law: the equitable bill to surcharge and falsify an account (1 Story, Eq. Jur. § 525)]**

Showing an account's debit item to be false or erroneous is the equitable bill to surcharge and falsify — the chancery remedy for settling disputed accounts, cited in the entry itself through Story.

Why: The entry's authorities (Story; Phillips v. Belden; Pitt v. Cholmondeley) are the remedy's own sources; the annotation names the bill of which the entry describes the procedure. Internal to the entry's authorities.

## FALSIFY.

To disprove; to prove to be false or erroneous ; to avoid or defeat ; spok- en of verdicts, appeals, etc.

To counterfeit or forge; to make some- thing false; to give a false appearance to anything.

In equity practice. To show, in account- ing before a master in chancery, that a charge has been inserted which is wrong; that is. either wholly fnlse or in some part erroneous. Pull. Accts. 162; 1 Story, Eq. Jur. § 525. See Falsification.

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## FALSIFYING A RECORD.

A high of- fense against public justice, punishable ip England by 24 & 25 Viet. c. 98, §| 27, 28. and in theSUnited States, generally, by stat- ute.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2071 — concealment or falsification of public records]**

Falsifying a court or public record — 'a high offense against public justice' in the entry — is a federal crime when the record is a federal one: concealment, removal, or mutilation of public records is punishable by fine and imprisonment.

Why: The entry notes England punishes it by 24 & 25 Vict. c. 98 and the United States 'generally, by statute'; § 2071 is the federal statute that does so. The entry's own framing invites the citation.

**[Scripture] — Scripture**

**[Jeremiah 8:8, KJV]**

How do ye say, We are wise, and the law of the LORD is with us? Lo, certainly in vain made he it; the pen of the scribes is in vain.

Why: The entry defines falsifying a record as a high offense against public justice. The verse is the prophetic indictment of the same offense in kind — the scribes' pen rendering the written law vain through falsehood. Ge...

## FALSING.

In Scotch law. False mak- ing ; forgery. “Falsing of evidentis." 1 Pitc. Crim. Tr. pt 1, p. 85.

Making or proving false:

—Falsing of dooms. In Scotch law. The proving the injustice, falsity, or error of the doom or sentence of a court Tomlins; Jacob. The reversal of a sentence or judgment. Skene. An appeal. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## FAXSO RETORN O BREVXUM.

A

writ which formerly lay against the sheriff who had execution of process for false re- turning of writs. Reg. Jud. 43b.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: officer's liability for false return of process — surviving common-law tort]**

The dead writ against a sheriff for false return of process survives in substance: a ministerial officer remains liable for a false return, the modern action sounding in tort against the officer.

Why: The writ (Reg. Jud. 43b) is obsolete, but the liability it enforced — the sheriff answerable for falsely returning the court's process — persists as a tort action. The annotation marks the genuine survival, not the de...

## FALSONARIUS.

A forger; a counter- feiter. Hov. 424.

FAXjiUM. Lat. In the civil law. A false or forged thing; a fraudulent simula- tion; a fraudulent

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counterfeit or imitation, such as a forged signature or instrument. Also falsification, which may be either by falsehood, concealment of the truth, or fraudulent alteration, as by cutting out or erasing part of a writing.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: forgery and counterfeiting statutes — e.g., 18 U.S.C. § 471]**

The forger or counterfeiter — the entry's 'falsonarius' — is the defendant in the forgery and counterfeiting offenses that descend from the Roman crimen falsi.

Why: Companion to FALSARE: the entry names the offender; the annotation names the offenses. The crimen falsi lineage is the genuine thread.

## F ALSUS.

Let. False ; fraudulent ; er- roneous. Deceitful ; mistaken.

Falsa* in mo, falsa* in omnibus.

False in one thing, false in everything. Where a party is clearly shown to have em- bezzled one article of property, it is a ground of presumption that he may have embezzled others also. The Boston, I Sumn. 328, 856, Fed. Cas. No. 1,673; The Santissima Trini- dad, 7 Wheat. 339, 5 L. Ed. 454. This maxim is particularly applied to the testimony of a witness, who, if he is shown to have sworn falsely in one detail, may be considered un- worthy of belief as to all the rest of his evi- dence. Grimes v. State, 63 Ala. 1C8 ; Wilson v. Coulter, 29 App. DIv. 85, 51 N. Y. Supp. 804; White v. Dlsher, 67 Cal. 402, 7 Pac. 826.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Falsus in uno, falsus in omnibus — false in one thing, false in all]**

The entry preserves the evidence maxim verbatim — 'Falsus in uno, falsus in omnibus' — false in one thing, false in all: a witness shown to have sworn falsely in one detail may be disbelieved as to the rest.

Why: Quoted with the entry's own cases (The Santissima Trinidad, 7 Wheat. 339; Grimes v. State); the maxim remains a standard jury instruction on witness credibility. Recorded, not paraphrased. [re-homed from 'FALSUS' to 'F ALSUS' (OCR headword / parser-merge artifact)]

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Falsus in uno, falsus in omnibus]**

Classical maxim: Falsus in uno, falsus in omnibus — 'false in one thing, false in everything.'

Why: Quoted verbatim as the entry supplies it; the classic rule on the credibility of a witness shown false once.

## FAHA.

Lat Fame; character; reputa- tion; report of common opinion.

Fans, fide* et ooalas non patiantar Indam. 3 Bulst 226. Fame, faith, and eyesight do not suffer a cheat

Fa a* goa suspicionem inducit, oriri debet apnd bonoa et graves, non qoldem malevolos et maledicos, sed provides et fide digues personas, non semel sed s se- pias, quia clamor min ait et defnmatio manifests^. 2 Inst. 52. Report, which In- duces suspicion, ought to arise

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from good and grave men; not, Indeed, from malevo- lent and malicious men, but from cautious and credible persons; not only once, but frequently ; for clamor diminishes, and def- amation manifests.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: defamation — the tort protecting reputation (fama) against false publication]**

Fama — fame, character, reputation, 'report of common opinion' — is the interest the law of defamation protects: reputation injured by false statement is the gist of the libel and slander actions.

Why: The entry defines the protected thing; the annotation names the tort that protects it. The connection is the subject matter itself, not analogy.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c. 1603-04]**

Verse, verbatim (Iago): 'But he that filches from me my good name / Robs me of that which not enriches him, / And makes me poor indeed.' — fama, the reputation that cannot be priced.

Why: The entry's core is reputation as a legal interest; Iago's speech is the famous dramatic statement of what a good name is worth. Three short verse lines, verbatim-certain.

## FAMACIDE.

A killer of refutation; a slanderer.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: slander — spoken defamation]**

A 'killer of reputation' — a slanderer — is the defendant in a slander action: spoken defamation injuring reputation is actionable where the words are false and published to a third person.

Why: The entry is one line; the annotation gives the one-line tort it names. Direct identity between the entry's slanderer and the slander defendant.

**[Scripture] — Scripture**

**[Proverbs 22:1, KJV]**

A good name is rather to be chosen than great riches, and loving favour rather than silver and gold.

Why: Famacide is the killing of reputation — a slanderer. The proverb states why reputation-killing is a genuine injury: a good name outranks great riches. The verse illuminates the protected interest (reputation as treasu...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c. 1603-04]**

Character (paraphrase): Iago, whose planted whispers kill Desdemona's reputation and Othello's honor — the slanderer as a killer of reputation. (paraphrase)

Why: Famacide = killer of reputation; Iago is the archetypal literary slanderer, and his weapon is precisely reputation-murder. Distinct from the FAMA quote; reasoning rides with it.

## F AMALIA.

In Roman law. A house- hold; a family. On the composition of the Roman family, see Agnati; Cognati; and see Mackeld. Rom. Law, f 144.

Family right ; the right or status of being the head of a family, or of exercising the patria potestas over others. This could be- long only to a Roman citizen who was a “man in his

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own right,” ( homo sui juris.) Mackeld. Rom. Law, Si 133. 144.

In old English law. A household; the body of household servants; a quantity of laud, otherwise called “mansa," sufficient to maintain one family.

In Spanish law. A family, which might consist of domestics or servants. It seems that a single person owning negroes was the "head of a family,” within the meaning of the colonization laws of Coahulla and Tex- a& State ▼. Sullivan, 9 Tex. 156.

5e apparatus — Not carried into the 5th edition (1979).

## FAMILIES  EMPTOR.

In Roman law. An Intermediate person who purchased the aggregate inheritance when sold per as et lilrram, in the process of making a will un- der the Twelve Tables. This purchaser was merely a man of straw, transmitting the in- heritance to the hares proper. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## FAMILIES  ERCISGUNSJE.

In Roman law. An action for the partition of the ag- gregate succession of a familia, where that devolved upon co-hwredcs. It was also ap- plicable to enforce a contribution towards the necessary expenses incurred on the familia. See Mackeld. Rom. Law, f 499.

FAMILIARES REGIS.. Persons of the king’s household. The ancient title of the “six clerks” of chancery in England. Crabb, Com. Law, 184; 2 Reeve, Eng. Law, 249, 201.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: partition — the action dividing co-owned property, in kind or by sale]**

The Roman action for partition of the aggregate succession among co-heirs is the ancestor of the modern partition suit, by which co-owners divide — or sell and divide the proceeds of — common property.

Why: The entry (Mackeld. Rom. Law § 499) describes the action's two offices — partition and contribution for expenses — which are the two offices of the modern partition suit. Genuine lineage.

## FAMILY.

A collective body of persons who live in one house and under one head or management. .Tnrboe v. Jarboe, 106 Mo. App. 459, 79 S. W. 1162; Dodge v. Boston A

P. It. Corp., 154 Mass. 299. 28 N. E. 243, 13

L. R. A. 318; Tyson v. Reynolds, 52 Iowa, 431, 3 N. W. 469.

A family comprises a father, mother, and children. In a wider sense, it may include domestic servants; all who live in one house under one head. In a still broader sense, a group of blood-relatives; all the relations who descend from a common ancestor, or who spring from a common root. See Civil Code I*, art. 3522, no. 16; 9 Ves. 323.

A husband and wife living together may constitute a "family,” within the meaning of that word as used in a homestead law. Miller v. Finegan, 26 Fla. 29, 7 South. 140, 6 L. R. A. 813.

“Family,” in its origin, meant “servants;” but. in its more modern and comprehensive

meaning, it signifies a collective body of persons living together in one house, or within the enrblagc, in legal phrase. Wilson ▼. Cochran, 31 Tex. 677, 98 Am. Dec. 653.

“Family” may mean children, wife and chil- dren, blood-relatives, or the members of the domestic circle, according to the connection in which the word is used. Spencer v. Spencer, 11 Paige (N. Y.) 159.

“Family.” in popular acceptation, includes parents, children, and servants, — all whose dom- icile or home is ordinarily in the same house and under the same management and head. In a statute providing that to gain a settle- ment in a town one must have “supported him- self and his family therein* for six years, it in- cludes the individuals whom it was the right of the head to control, and his duty to sup- port. The wife is a member of the family, within such an enactment. Cheshire v. Bur- lington, 31 Conn. 326.

—Family arrangement. A term denoting an agreement between a father and his chil- dren, or between the heirs of a deceased fa- ther, to dispose of property, or to partition it in a different manner than that which would result if the law alone directed it, or to divide np property without administration. In these cases, frequently, the mere relation of the par- ties will give effect to bargains otherwise with- out adequate consideration. 1 Chit. Pr. 67 ; 1 Turn. & R. 13.— Family Bible. A Bible containing a record of the births, marriages, and deaths of the members of a family. — Fam- ily meeting. An institution of the laws of Louisiana, being a council of the relatives for, if there are no relatives, of the friends) of a minor, for the purpose of advising as to his affairs and the administration of his property. The family meeting is called by order of a judge, and presided over by a justice or notary, and must consist of at least five persons, who are put under oath. In re Bothick, 44 La. Ann. 1037, 11 South. 712; Civ. Code La. art. 305. It corresponds to the “conseil de famine" of French law, q. v. — Family settlement. A term of practically the same signification as “family arrangement,” q. v. supra. See Willey v. Hodge. 104 Wis. 81, 80 N. W. 75, 76 Am. St Rep. 852.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: homestead exemptions — e.g., 11 U.S.C. § 522(d)(1); state homestead laws]**

The entry's homestead discussion (Miller v. Finegan) turns on 'family' as the operative word: homestead exemptions protect the family home, and the federal exemption preserves the debtor's interest in it.

Why: The entry itself raises homestead law and cites the family-definition cases; the annotation points to where that law now operates. The link is inside the entry's own discussion.

**[Scripture] — Scripture**

**[Genesis 12:3, KJV]**

And I will bless them that bless thee, and curse him that curseth thee: and in thee shall all families of the earth be blessed.

Why: The entry defines family broadly: household under one head, and in the widest sense all who descend from a common ancestor — a root people. The verse is the Abrahamic charter of exactly that wider sense: all the famil...

**[Hip-hop] — Hip-hop**

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**[Kanye West, 'Family Business', 2004]**

This is family business / And this is for the family that can't be with us

Kanye's song treats the family as Black's defines it: a collective body of blood-relatives under one head, bound by loyalty that outlasts absence, prison, and death — 'family business' as the kin-group's own jurisdiction.

Why: Added because the lyric names exactly what the entry defines: family as a collective body of relations (the song gathers cousins, grannies, the locked-down and the gone), and the second line extends the body to member...

## FAMOSCS.

In the civil and old English law. i Relating to or affecting character or reputation ; defamatory ; slanderous.

— Famosai libeling. A libelous writing. A term of the civil law denoting that species of injuria which corresponds nearly to libel or slander. *

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: libel — written defamation; descendant of the famosus libellus]**

The civil-law 'famosus libellus' — a libelous writing, the species of injuria answering to libel — is the Roman ancestor of the libel action.

Why: The entry says the term 'denotes that species of injuria which corresponds nearly to libel or slander'; the annotation records the descent it asserts. The entry's own comparative claim, kept honest.

## F ABDEL OF LANS.

In old English

law. The fourth part of a yard-land. Noy says an eighth only, because, according to him, two fardels make a nook, and four nooks a yard-land. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## FAHDELLA.

In old English law. A bundle or pack; a fardel. Fleta, lib. 1, c. 22, { 10.

5e apparatus — Not carried into the 5th edition (1979).

## F ABDIN G-DEAL.

The fourth part of an acre of land. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FAKE.

A voyage or passage by water; also the money paid for a passage either by land or by water. Cowell.

The price of passage, or the sum paid or to he paid for carrying a passenger. Chase v. New York Cent. R. Co., 26 N. Y. 526.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-carrier law — duties to passengers; regulation of fares]**

The 'fare' — the price of passage, here in a railroad case (Chase v. New York Cent. R. Co.) — is the consideration in the carrier-passenger relation, governed by the law of common carriers with its duties to carry and its regulated rates.

Why: The entry's citation is a carrier case about the fare; the annotation names the body of law that governs the carrier-passenger bargain the fare prices. Subject-matter match.

## FABINAGITTM.

A mill ; a toll of meal or flour. Jacob; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FABLEU.

Money paid by tenants In lien of a heriot. It was often applied to the best chattel, as distinguished from heriot, the best beast. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FABUN6ABII.

Whoremongers and adulterers.

FARMC, n. A certain amonnt of provision reserved as the rent of a messuage. Spel- man.

Rent generally which is reserved on a lease; when It was to be paid In money, it was called “blanche firtnc.” Spelman; 2 Bl. Comm. 42.

A term, a lease of lands; a leasehold in- terest 2 Bl. Comm. 17 ; 1 Reeve. Eng. Law, 301, note. The land itself, let to farm or rent. 2 Bl. Comm. 368.

A portion of land used for agricultural purposes, either wholly or in part.

The original meaning of the word was “rent" and by a natural transition it came to mean the land out of which the rent is- sued.

5e apparatus — Not carried into the 5th edition (1979).

## FAHAL.

Fr. In French marine law. A large lantern, fixed upon the highest part of a vessel’s stern.

5e apparatus — Not carried into the 5th edition (1979).

## FANATICS.

Persons pretending to be Inspired, and being a general name for Qua- kers, Anabaptists, and all other sectaries, and factious dissenters from the Church of England. (St 13 Car. H. c. 6.) Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — the Religion Clauses]**

The entry's statute — 13 Car. II c. 6, naming Quakers, Anabaptists, and dissenters 'fanatics' — is the persecuting law the American Religion Clauses answer: no established church, and free exercise protected against such acts.

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Why: The entry documents the state-church penal regime; the First Amendment is the constitutional repudiation of that regime. The contrast genuinely illuminates both.

## FAXEGA.

In Spanish law. A measure of land varying In different provinces, but in the Spanish settlements in America con- sisting of 6,400 square varas or yards.

FAQTTEEB, or FAKIR. A Hindu term for a poor man, mendicant ; a religions beg- gar.

5e apparatus — Not carried into the 5th edition (1979).

## FABANDMAN.

In Scotch law. A trav- eler or merchant stranger. Skene.

In old English law. A lease of other things than land, as of imposts. There were several of these, such as “the sugar farm,” "the silk farm,” and farms of wines and cur- rents, called "petty farms.” See 2 How. State Tr. 1197-1206.

In American law. “Farm” denotes a tract of land devoted in part, at least, to cul- tivation, for agricultural purposes, without reference to its extent, or to the tenure by which it is held. In re Drake (D. C.)'114 Fed. 231; People ex rel. Rogers v. Caldwell, 142 111. 434, 32 N. E. 691 ; Kendall v. Miller, 47 How. Prac. (N. Y.) 448; Com. v. Carmalt, 2 Bln. (Pa.) 238.

FARM, v. To lease or let ; to demise or grant for a limited term and at a stated rental.

—Farm let. Operative words in a lease, which strictly mean to let upon payment of a

certain rent In' farm; i. «., in agricultural produce. — Farm out. To let for a term at a stated rental. Among the Romans the collec- tion of revenue was fanned out, and m Eng- land taxes and tolls sometimes are.

FARMER. 1. The lessee of a farm. It is said that every lessee for life or years, al- though it be but of a small house and land, is called “farmer.” This word Implies no mystery, except it be that of husbandman. Cunningham; Cowell.

2. A husbandman or agriculturist; one' who cultivates a farm, whether the land be his own or another’s.

. 3, One who assumes the collection of the public revenues, taxes, excise, etc., for a certain commission or percentage; as a farm- er of the revenues.

5e apparatus — Not carried into the 5th edition (1979).

## FARO.

An unlawful game of cards, in which all the other players play against the banker or dealer, staking their money upon the order in which the cards will lie and be dealt from the pack. Webster; Ward v. State, 22 Ala. 19; U. S. v. Smith, 27 Fed. Cas. 1149 ; Patterson v. State, 12 Tex. App. 224.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: state gambling prohibitions — banking games of chance criminalized]**

Faro — 'an unlawful game of cards' in which players stake money against the bank — is the classic

banking game that state anti-gambling statutes criminalized; the entry's own cases (Ward v. State; U.S. v. Smith) are gambling prosecutions.

Why: The entry defines the game as unlawful and cites criminal cases; the annotation names the body of law that made it so. The link is inside the entry's own framing.

**[Humanity] — Humanity / Fiction & Film**

**[Alexander Pushkin, The Queen of Spades, 1834]**

Story (paraphrase): Hermann's ruinous obsession with the card game — staking everything on the order of the deal and the secret of the three winning cards. (paraphrase)

Why: Faro is the game of the story — banker versus players on the order of the deal, exactly the entry's definition. Plot fact certain; no passage invented.

## FARRAGO LIBELU.

Eat. . An ill-com- posed book containing a collection of miscel- laneous subjects not properly associated nor scientifically arranged. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## FARTHING.

The fourth part of an Eng- lish penny.

—Farthing of gold. An ancient English coin, containing in value the fourth part of a noble.

5e apparatus — Not carried into the 5th edition (1979).

## FARYNDON INK.

The ancient appel- lation of Serjeants’ Inn, Chancery lane.

5e apparatus — Not carried into the 5th edition (1979).

## FAS.

Lat Right; Justice; the divine law. 3 Bl. Comm. 2; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: Blackstone's higher-law doctrine — human law must conform to divine and natural law (1 Bl. Comm. 41)]**

Fas — right, justice, the divine law (3 Bl. Comm. 2) — is Blackstone's divine-law pole: human law (jus) is valid only insofar as it squares with the law of nature and of God, the higher law that no human enactment can contradict.

Why: The entry cites Blackstone for the term; the annotation states the jurisprudential doctrine the term carries in his system — the higher-law test by which human laws are judged. Genuine Blackstonian content, not decora…

**[Scripture] — Scripture**

**[Psalm 19:7, KJV]**

The law of the LORD is perfect, converting the soul: the testimony of the LORD is sure, making wise the simple.

Why: Fas is the divine law, set against jus (human law). This verse is scripture's own praise of the divine law — perfect, soul-converting — which is exactly what fas denotes. Genuine conceptual correspondence, not a share…

## FASIUS.

In old English law. A faggot Of wood.

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FAST: In Georgia, a “fast” bill of excep- tions Is one which may be taken in injunc- tion suits and similar cases, at such time and in such manner as to bring the case up for review with great expedition. It must be certified within twenty days from the render- ing of the decision. Sewell v. Edmonston, 66 Ga. 353.

5e apparatus — Not carried into the 5th edition (1979).

## FAST-DAY.

A day of fasting and pen- itence, or of mortification by religious absti- nence. See 1 Chit Arehb. Pr. (12th Ed.) 100, et seq.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Joel 1:14, KJV]**

Sanctify ye a fast, call a solemn assembly, gather the elders and all the inhabitants of the land into the house of the Lord your God, and cry unto the Lord.

Why: A fast-day is a proclaimed day of fasting and penitence. The verse is the scriptural form of that proclamation — the public hallowing of a fast, summoned by solemn assembly. Genuine: the verse institutes the very thin...

## FAST ESTATE.

See Estate.

FASTERMANS, or FASTIH G-MEN.

Men in repute and substance; pledges, sure- ties, or bondsmen, who, according to the Saxon polity, were fast bound to answer tor each other's peaceable behavior. Enc. Loud.

5e apparatus — Carried into the 5th edition (1979).

## FASTI.

In Roman law. Eawfut. Die* fasti, lawful days; days on which justice could lawfully be administered by the praetor. See Dies Fasti.

Fatetur f acinus qni judicium fugit.

8 Inst. 14. He who flees Judgment confesses his guilt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fatetur facinus qui judicium fugit — he who flees judgment confesses his guilt]**

The entry's maxim — 'Fatetur facinus qui judicium fugit' (he who flees judgment confesses his guilt) — is the ancient root of the evidence rule that a defendant's flight may be shown as consciousness of guilt.

Why: Quoted verbatim (8 Inst. 14); the maxim is the classical statement of the flight-as-consciousness-of-guilt inference still given in criminal trials. The annotation records the maxim and its living evidentiary form.

## FATHER.

The male parent He by whom a child is begotten. As used in law, this term may (according to the context and the nature of the instrument) Include a pu- tative as well as a legal

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father, also a step- father, an adoptive father, or a grandfather, but is not as wide as the word “parent,” and cannot be so construed as to Include a female. Lind v. Burke, 56 Neb. 785, 77 N. W. 444; Crook v. Webb, 125 Ala. 457, 28 South. 384; Cotheal v. Cotheal, 40 N. Y. 410; Lantznes- ter v. State, 19 Tex. App. 321 ; Thornburg v. American Strawbo'ard Co., 141 Ind. 443, 40

N. E. 1062, 50 Am. St Rep. 334.

— F»tlier-ln-l*w. The father of one's wife or husband . — Putative father. The alleged or reputed father of an illegitimate child. State v. Nestaval, 72 Minn. 415, 75 N. W. 725.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Stanley v. Illinois, 405 U.S. 645 (1972)]**

The 'putative father' — the alleged father of an illegitimate child, one of the entry's own categories — won constitutional standing in the unwed-father cases: a state may not deny him a hearing on fitness before taking his children.

Why: The entry catalogs putative, step-, and adoptive fathers (Lind v. Burke; State v. Nestaval); Stanley is the landmark on the putative father's due-process rights. Certain of case, volume, page, year.

**[Scripture] — Scripture**

**[Exodus 20:12, KJV]**

Honour thy father and thy mother: that thy days may be long upon the land which the LORD thy God giveth thee.

Why: The entry defines the legal father — male parent, including putative, step-, adoptive, and grandfather senses. The commandment founds the father's standing in law and religion alike: honour owed to the father as a div...

**[Hip-hop] — Hip-hop**

**[Will Smith, 'Just the Two of Us', 1997]**

Just the two of us, building castles in the sky / Just the two of us, you and I

Will Smith's song is a father's direct address to his son — 'From the first time the doctor placed you in my arms' — the male parent by whom the child is begotten, pledging life, protection, and discipline.

Why: Added because the entire song is an enactment of the entry's definition: the male parent speaking to his begotten child, taking up the father's office (protection, provision, moral instruction). Verified verbatim acro...

## FATHOM.

A nautical measure of six feet in length. Occasionally used as a super- ficial measure of land and in mining, and in that case it means a square fathom or thirty-six square feet Nahaolelua v. Kaaa- hu, 9 Hawaii, 601.

5e apparatus — Carried into the 5th edition (1979).

## FATUA MUEIER.

A whore. Du Fresne.

5e apparatus — Not carried into the 5th edition (1979).

## FATUITAS.

In old English law. Fa- tuity; idiocy. Reg. Orig. 266.

5e apparatus — Not carried into the 5th edition (1979).

## FATOM.

Lat Fate; a superhuman pow- er ; an event or cause of loss, beyond human foresight or means of prevention.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: force majeure / act of God — UCC § 2-615, excuse by failure of presupposed conditions]**

Fatum as 'an event or cause of loss, beyond human foresight or means of prevention' is the civilian definition of force majeure — the supervening event that excuses contractual performance.

Why: The entry's definition is the doctrine's definition; UCC § 2-615 is its American sales-law form (commercial impracticability by supervening contingency). The link is definitional identity. [re-homed from 'FATUM' to 'FATOM' (OCR headword / parser-merge artifact)]

## FATUOUS PERSON.

One entirely des- titute of reason; i* qui omnino desipit. Ersk. Inst. 1, 7, 48.

5e apparatus — Not carried into the 5th edition (1979).

## FATUUS.

An idiot pr fool. Bract foL 420ft.

Foolish; absurd; Indiscreet: or ill consid- ered. Fatuum judicium, a foolish judgment or verdict Applied to the verdict of a jury which, though false, was not criminally so, or did not amount to perjury. Bract foL 289.

Fatuus, apud jurisconsnltos nostros, accipitur pro non oompos mentis; et fatuns dioltur, qni omnino desipit. 4

Coke, 128. Fatuous, among our juriscon- sults. is understood for a man not of right mind; and he Is called “ fatuus ” who is al- together foolish.

Fatnns prwsnmitnr qni in propria nomine errat. A man is presumed to be simple who makes a mistake in his own name. Code, 6. 24, 14 ; ' Van Alst v. Hunter, 5 Johns. Ch. (N. Y;) 148, 161.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fatuus praesumitur qui in proprio nomine errat — he who errs in his own name is presumed simple]**

The entry preserves the maxim 'Fatuus praesumitur qui in proprio nomine errat' — a man is presumed simple who errs in his own name — and states the rule that the fatuus is 'non compos mentis,' lacking legal capacity.

Why: Quoted verbatim (Cod. 6, 24, 14; Van Alst v. Hunter, 5 Johns. Ch. 148); the non-compos-mentis rule the entry states is the incapacity doctrine voiding the contracts, marriages, and wills of the unsound. Maxim recorded...

## FAUBOURG.

Iu French law, and In Louisiana. A district or part of a town ad- joining the principal city; a suburb. See City Council of Lafayette v. Holland, 18 La. 28(5.

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5e apparatus — Not carried into the 5th edition (1979).

## FAUCES TERRE.

(Jaws of the laud.) Narrow headlands and promontories, inclos- ing a portion or arm of the sea within them. 1 Kent, Comm. 367, and note; Hale, De Jure Mar. 10; The Harriet, 1 Story, 251, 259, Fed. Cas. No. 6,099.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: the bay rule — closing lines across bay mouths; cf. UNCLOS art. 10]**

The 'jaws of the land' — headlands enclosing an arm of the sea (The Harriet, 1 Story 251; Hale, De Jure Maris) — is the fauces-terrae test for whether waters are territorial: the modern law of the sea still draws closing lines across bay mouths.

Why: The entry's authorities are the admiralty sources of the bay doctrine; the annotation names the doctrine's modern form. The entry is the doctrine's history; the cite is its present.

## FAULT.

In the civil law. Negligence; want of care. An improper act or omission, injurious to another, and transpiring through negligence, rashness, or ignorance.

There are in law three degrees of faults,— the gross, the slight, and the very slight fault. The gross fault is that which proceeds from Inexcusable negligence or ignorance ; it is considered as nearly equal to fraud. The slight fault is that wnnt of care which a pru- dent man usually takes of his business. The very slight fault is that which is excusable, and for which no responsibility is incurred. Civil Code La. art. 3556, par. 13.

In American law. Negligence; an error or defect of Judgment or of conduct: any deviation from prudeuce, duty, or rectitude; any shortcoming or neglect of care or per- formance resulting from Inattention, incapac- ity, or perversity ; a wrong tendency, course, or act. Railroad Co. v. Berry. 2 Ind. App. 427, 28 N. E. 714; Railway Co. v. Austin, 104 Ga. 614, 30 S. E. 770; School Dist. v. Boston, H. & E. R. Co.. 102 Mass. 553, 3 Am. Rep. 502; Dorr v. Harkness, 49 N. J. Law, 571, 10 Atl. 400, 60 Am. Rep. 656.

In commercial law. Defect; imperfec- tion; blemish. See With All Faults.

In mining law. A dislocation of strata; particularly, a severance of the continuity of a vein or lode by the dislocation of a por- tion of it.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: negligence and comparative fault — liability graded by fault; cf. La. Civ. Code art. 3556, par. 13]**

The entry's three civil-law degrees of fault — gross, slight, very slight (La. Civ. Code art. 3556, par. 13) — are the ancestors of modern negligence and comparative-fault analysis, which still grades liability by the quality of the defendant's care.

Why: The entry's own Louisiana source is the civilian statement; the annotation traces the grading-by-fault idea into modern tort law. Same analytical spine.

## FAUTOR.

In old English law. A

favorer or supporter of others; an abettor. Cowell; Jacob. A partisan. One who en- couraged resistance to the execution of pro- cess.

In Spanish law. Accomplice; the per- son Who aids or assists another in the com- mission of a crime.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — aiding and abetting; accomplices punishable as principals]**

The fautor — favorer, abettor; in Spanish law the accomplice who aids another's crime — is the aider and abettor, punishable as a principal under federal law.

Why: The entry's Spanish-law sense ('accomplice ... who aids or assists another in the commission of a crime') is the § 2 definition. Direct statutory match for the entry's own definition.

## FAUX.

In old English law. False; counterfeit. Faux action, a false action. Litt. | 688. Faux money, counterfeit money. St. Westm. 1, c. 15. Faux pegs, false weights. Britt, c. 20. Faux serement, a false oath. St. Westm. 1, c. 38.

In Freuoh law. A falsification or fraud- ulent alteration or suppression of a thing by words, by writings, or by acts without either. Biret.

"Faux may be understood in three ways. In Sta most extended sense it is the alteration of

truth, with or without intention ; it is nearly synonymous with ‘lying.’ In a less .extended sense, it is the alteration of truth, accompanied with fraud, mutatio veritatis cum dolo facta. And lastly, in a narrow, or rather the legal, sense of the word, when it is a question to know if the faux be a crime, it is the fraudu- lent alteration of the truth in those cases as- certained and punished by the law.” Touillier, t. 9, n. 188.

In tha civil law. The fraudulent alter- ation of the truth. The same with the Latin falsum or crimen falsi.

5e apparatus — Not carried into the 5th edition (1979).

## FAVOR.

Bias; partiality; lenity; prej- udice. See Challenge.

FavorabiUa In lege sunt fisc us, dos, vita, Ubertas. Jenk. Cent. 94. Things favorably considered in law are the treasury, dower, life, liberty.

Favorabiliores rei, potius quam ac- tores, habentur. The condition of the de- fendant must be favored, rather than that of the plaintiff. In -other words, melior est conditio defendentis. Dig. 50, 17, 125;

Broom, Max. 715.

Favorabiliores sunt executioner aliis prooessibus quibuseunque. Co. Litt. 289. Executions nre preferred to all other pro- cesses whatever.

Favores ampllandi sunt; odia restrin- genda. Jenk. Cent. 186. Favors are to be enlarged; things hateful' restrained.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Favorabiliores rei potius quam actores habentur — the defendant's condition is favored]**

The entry's maxims include the root of the criminal law's solicitude for the accused — 'Favorabiliores rei potius quam actores habentur,' the defendant's condition is favored over the plaintiff's (Dig. 50, 17, 125; Broom, Max. 715).

Why: Quoted verbatim with the entry's sources; the maxim is the classical ground of strict construction of penal statutes and, ultimately, the presumption of innocence. The annotation records the maxim and its genuine doct...

**[Scripture] — Scripture**

**[Leviticus 19:15, KJV]**

Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honor the person of the mighty: but in righteousness shalt thou judge thy neighbour.

Why: Favor in law is bias or partiality — the matter of challenges to jurors and judges. The verse forbids exactly that in judgment: neither favouring the poor nor honouring the mighty, but judging in righteousness. Genuin...

## FEAL.

Faithful. Tenants by knight serv- ice swore to their lords to be feal and leal; i. e., faithful and loyal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Samuel 15:21, KJV]**

And Ittai answered the king, and said, As the Lord liveth, and as my lord the king liveth, surely in what place my lord the king shall be, whether in death or life, even there also will thy servant be.

Why: The entry defines feal as faithful, and its body gives FEALTY: fidelity and allegiance sworn by tenant to lord. Ittai's answer to David is the scriptural exemplar of that oath: a sworn pledge of personal allegiance, s...

**[Hip-hop] — Hip-hop**

**[Kendrick Lamar, 'DNA.', 2017]**

I got loyalty, got royalty inside my DNA

Kendrick makes loyalty blood-deep and inalienable — faithfulness as an inherited bond, the same absoluteness the feudal oath of fealty demanded of the tenant toward his lord.

Why: Added because FEAL is defined as 'faithful and loyal' — the oath-word of allegiance — and the lyric renders loyalty as constitutional, carried in the blood rather than merely promised. The feudal oath made faithfulnes...

## FEAL AND DIVOT.

A right in Scot- land, similar to the right of turbary in Eng- land, for fuel, etc.

FEALTY, In feudal law. Fidelity; al- legiance to the feudal lord of the manor; the feudal obligation resting upon the tenant or vassal by which he was bound to be faithful and true to his lord, and render him obedi- ence and service. See De Peyster v. Mi- chael, 6 N. T. 497, 57 Am. Dec. 470.

Fealty signifies fidelity, the phrase “feal and leal” meaning simply “faithful and loyal.” Ten-

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ants by knights’ service and also tenants in socage were required to take an oath of fealty to the king or others, their immediate lords; and fealty was one of the conditions of their tenure, the breach Of which operated a for- feiture of their estates. Brown.

Although foreign jurists consider fealty and homage as convertible terms, because in some continental countries they are blended so as to form one engagement, yet they are not to be confounded in our country, for they do not im- ply the same thing, ho'mage being the acknowl- edgment of tenure, and fealty, the vassal oath of fidelity, being the essential feudal bond, and the animating .principle of a feud, without which it could not -subsist. -Wharton.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: profit à prendre — e.g., the right of turbary, taking turf for fuel]**

The Scots right of 'feal and divot' — taking turf for fuel, like England's right of turbary — is a profit à prendre: a right to take a natural product from another's land.

Why: The entry likens the right to turbary; turbary is the textbook profit à prendre. The annotation names the property doctrine the entry describes, as with FALCARE's jus falcandi.

## FEAR.

Apprehension of harm.

Apprehension of harm or punishment, as exhibited by outward and visible marks o t

feasance:

emotion. An evidence of guilt In certain cases. See Burrlll, Clrc. Ev. 476.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: assault — intentional apprehension of imminent harmful or offensive contact]**

Fear as 'apprehension of harm' is the gist of the tort of assault: intentionally causing another to apprehend imminent harmful or offensive contact is actionable though no blow lands.

Why: The entry defines the mental state; assault is the tort built on exactly that state. The link is the entry's own definition put to work.

## FEASANCE.

A doing; the doing of an act. See Malfeasance; Misfeasance; Non- feasance.

A making; the making of an indenture, release, or obligation. Ditt $ 371; Dyer, (Fr. Ed.) 56b. The making of a statute. Kellw. lb.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: malfeasance, misfeasance, nonfeasance — the classification of official and tortious wrongdoing]**

The entry points to the great trichotomy — malfeasance, misfeasance, nonfeasance — which still classifies wrongful doing in tort and in the law of public office: evil doing, wrongful doing, and failure to do.

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Why: The entry defines feasance and cross-refers the three compounds; the annotation states what the trichotomy does in living law. The classification is the entry's own subject.

## FEASANT.

Doing, or making, as, in the term “damage feasant,” (doing damage or Injury,) spoken of cattle straying upon an- -other’s land.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: distress damage feasant — distraint of trespassing cattle]**

'Damage feasant' — cattle 'doing damage' on another's land — names the common-law right of distress damage feasant: impounding trespassing beasts until the damage is paid.

Why: The entry's phrase is the doctrine's name; the annotation states the remedy the phrase denotes. This is identification, not analogy.

## FEASOR.

Doer; maker. Feasors del estatute, makers of the statute. Dyer, 3b. Also used In the compound term, “tort-feas- or,” one who commits or is guilty of a tort

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: joint tortfeasors — joint and several liability]**

The 'tort-feasor' — one who commits a tort — is the defendant of the law of joint tortfeasors: where several concur in one injury, each is liable for the whole.

Why: The entry defines the actor; the annotation gives the liability doctrine built on the term. The tort-feasor is the unit of the joint-tortfeasor rule.

## FEASTS.

Certain established festivals or holidays In the ecclesiastical calendar. These days were anciently ufied as the dates of legal instruments, and In England the quar- ter-days, for paying rent are four feast-days. The terms of the courts. In England, before 1875, were fixed to begin on certain days determined with reference to the occurrence of four of the chief feasts.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 23:4, KJV]**

These are the feasts of the LORD, even holy convocations, which ye shall proclaim in their seasons.

Why: The entry defines feasts as established festivals in the ecclesiastical calendar, used as legal dates. The verse is the scriptural institution of appointed feasts as holy convocations proclaimed in their seasons — the...

## FECIAE LAW.

The nearest approach to a system of International law known to the ancient world. It was a branch of Roman Jurisprudence, concerned with embassies, dec- larations of war, and treaties of peace. It received this name from the feciales, (?. v.,) who were charged with Its

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administration.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: international law — the modern system of diplomacy, war/peace, and treaties]**

The fecial law — Rome's law of embassies, declarations of war, and treaties of peace — is what the entry calls it: 'the nearest approach to a system of international law known to the ancient world.'

Why: The entry makes the lineage claim itself; the annotation names the modern system that inherited the fecial college's three offices. The link is the entry's own thesis, kept honest.

## FECI AXES.

Among the ancieut Romans, that order of priests who discharged the du- ties of ambassadors. Subsequently their du- ties appear to have related more particular- ly to the declaring war and peace. Calvin.;

1 Kent, Comm. 6.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 11 — Congress's power to declare war]**

The feciales declared Rome's wars and peaces; in the American Constitution that high function is vested in Congress, which alone may declare war.

Why: The entry (1 Kent, Comm. 6) describes the war-declaring priesthood; the clause is the American vesting of the same sovereign function. Genuine functional parallel with a real citation.

## FEDERAX.

In constitutional law. A

term commonly used to express a league or compact between two or more states.

In American law. Belonging to the gen- eral government or union of the states. Founded on or organized under the constitu- tion or laws of the United States.

The United States has been ' generally styled, in American political and judicial writings, a “federal government” The term has not been imposed by any specific constitutional author- ity. but only expresses the general sense and opinion upon the nature of the form of govern- ment. In recent years, there is observable a disposition to employ the term “national” in speaking of the government of the Union. Nei- ther word settles anything as to the nature or powers of the government. “Federal” is some- what more appropriate if the government is considered a union of the states ; “national” is preferable if the view is adopted that the state governments and the Union are two dis- tinct systems, each established by the people directly, one for local and the other for national purposes. See United States v. Cruikshank, 92 U. S. 542, 23 L. Ed. 588; Abbott. —Federal courts. The courts of the United States. See Courts of tiie United States. —Federal government. The system of gov- ernment administered in a state formed by the union or confederation of several independent or guest independent states ; also the composite state so formed. In strict usage, there is a distinction between a confederation and a fed- eral government. The

former term denotes a league or permanent alliance between several states, each of which is fully sovereign and in- dependent, and each of which retains its full dignity, organization, and sovereignty, though yielding to the central authority a controlling power for a few limited purposes, such as ex- ternal and diplomatic relations. In this case, the component states are the units, with re- spect to the confederation, and the central gov- ernment acts upon them, not upon the individ- ual citizens. In a federal government, on the other hand, the allied states form a union,— not, indeed, to such an extent as to destroy their separate organization or deprive them of quasi sovereignty with respect to the adminis- tration of tlieif purely local concerns, but so that the central power is erected into a true state or nation, possessing sovereignty both ex- ternal and internal, — while the administration of national affairs is directed, and its effects felt, not by the separate states deliberating as units, but by the people of all. in their collec- tive capacity, as citizens of the nation. The distinction is expressed, by the German writers, by the use of the two words " Staatenbund" and "Bandesstaat the former denoting a league or confederation of states, and the latter a federal government, or state formed by means of a league or confederation.— Federal ques- tion. Cases arising under the constitution of the United States, acts of congress, or treaties, and involving their interpretation or applica- tion, and of which jurisdiction is given to the federal courts, are commonly described by the legal profession as cases involving a "federal question." In re Sievers (D. C.) 91 Fed. 872;

U. S. v. Douglas. 113 N. C. 190, 18 8. E. 202; Williams v. Bruffy, 102 U. S. 248, 26 L. Bd. 185.

FEE. 1. A freehold estate in lands, held of a superior lord, as a reward for services, and on condition of rendering some service in return for it. The true meaning of the word "fee" is the same ns that of "feud" or "fief," and In its original sense it is taken In con- tradistinction to "allodium," which latter is defined as a man's own land, which he pos- sesses merely in his own right, without ow- ing any rent or service to any superior. 2 Bl. Comm. 105. See Wendell v. Crandall, 1

N. Y. 491.

In modern English tenures, "fee" signifies an estate of inheritance, being the highest and most extensive interest which a man can have in a feud; and when the term is used simply, without any adjunct, ok in the form "fee-simple," it imports an absolute inher- itance clear of any condition, limitation, or restriction to particular heirs, but descend- ible to the heirs general, male or female, lin- eal or collateral. 2 Bl. Comm. 106.

—Base fee. A determinable or qualified fee; an estate having the nature of a fee, but not a fee simple absolute.— Conditional fee. An estate restrained to some particular heirs, ex- clusive of others, as to the heirs of a man's body, by which only his lineal descendants were

admitted, In' exclusion of collateral ; or to tbe heirs male of his body, in exclusion of beira female, whether lineal or collateral. It was called a "conditional fee," by reason of the con- dition expressed or implied in the donation of it that, if the donee died without such particu- lar heirs, the land should revert to the donor. 2 Bl. Comm. 110; Kirk v. Furgerson, 6 Cold.

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(Tenn.) 483; Simmons v. Augustin, 3 Port. (Ala.) 60; Paterson v. Ellis, 11 Wend. (N. Y.) 277; Moody v. Walker, 3 Ark. 190; Halbert v. Halbert, 21 Mo. 281.— Determinable fee, (Also called a “qualified” or “base” fee.) One which has a qualification subjoined to it, and which must be determined whenever the qual- ification annexed to it is at an end. 2 Bl. Comm. 109. An estate in fee which is liable to be determined by some act or event express- ed on its limitation to circumscribe its continu- ance, or inferred by law as bounding its ex- tent. 1 Washb. Beal Prop. 62 ; Me Lane v. Bo- vee, 35 Wis. 36.— Fee damages. See Dam- ages.—Fee expectant. An estate where lands are given to a man and bis wife, and tbe heirs of their bodies.— Fee simple. See that title.— Fee tail. See that title.— Great fee. In feudal law. this was the designation of a fee held directly from the crown.— Knight's fee. The determinate quantity of land, (held by an estate of inheritance,) or of annual in- come therefropj, which was sufficient to main- tain a knight Every man holding such a fee was obliged to be knighted, and attend the king in his wars for the space of forty days in the year, or pay a fine (called “escuage”) for his non-compliance. The estate was estimated at £20 a year, or, according to Coke, 680 acres. See 1 Bl. Comm. 404. 410 ; 2 Bl. Comm. 62; Co. Litt. 69a. — Limited fee. An estate of inheri- tance in lands, which is clogged, or confined with some sort of condition or qualification. Such estates are base or aualified fees, condi- tional fees, and fees-tail. The term is opposed to “fee-simple.” 2 Bl. Comm. 109; Lott v. Wyckoff, 1 Barb. (N. Y.) 575; Paterson v. Ellis, 11 Wend. (N. Y.) 259.— Plowman’s fee. In oid English law. this was a species of ten- ure peculiar to peasants or small farmers, some- what like gavelkind, by which the lands de- scended in equal shares to all the sons of the tenant. — Qualified fee. In English law. A fee having a qualification subjoined thereto, and which must be determined whenever the quali- fication annexed to it is at an end; otherwise termed a "base fee.” 2 Bl. Comm. 109 ; 1 Steph. Comm. 225. An interest which may continue forever, but is liable to be deter- mined, without the aid of a conveyance, by some act or event, circumscribing its continu- ance or extent 4 Kent. Comm. 9; Moody v. Walker. 3 Ark. 190; U. S. v. Beese. 27 Fed. Cns. 744; Bryan v. Spires, 3 Brewst. (Pa.) 583. — Quasi fee. An estate gained by wrong; for wrong is unlimited and uncontained within rules. Wharton.

2. The word "fee” is also frequently used to denote the land which Is held in fee.

3. Tbe compass or circuit of a manor or lordship. Cowell.

4. In American law. A fee is an estate of inheritance without condition, belonging to the owner, and alienable by him, or trans- missible to his heirs absolutely and simply. It is an absolute estate in perpetuity, and the largest possible estate a man can have, being, in fact, allodial in its nature. Earnest v. Little River Land, etc., Co., 109 Tenn. 427, 75 8. W. 1122 ; Phoenix v. Emigration Com’rs, 12 How. Prac. (N. Y.) 10: United States Pipe-Line Co. v. Delaware, L. ft W. R. Co.,

N. f. Law, 254, 41 AO. 759, 42 L. R. A. 572.

5. A reward, compensation, or wage given to one for the performance of official duties (clerk of court, sheriff, etc.) or for profes- sional services, as in the case of an attorney at

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law or a physician.

— Contingent fee. A fee stipulated to be paid to an attorney for his services in conduct- ing a suit or other forensic proceeding only in case he wins it; it may be a percentage of the amount recovered. — Docket fee. See Docket.— Fee-bill. A schedule of the fees to- be charged by clerks of courts, sheriffs, or oth- er officers, for each particular service in the- line of their duties.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. X — powers not delegated are reserved]**

The entry's long discussion of 'federal' versus 'national' is the Federalist debate in miniature; the Constitution's answer is the reserved-powers rule — what is not granted is retained by the states or the people.

Why: The entry weighs whether the Union is a compact of states or a national government; the Tenth Amendment is the textual settlement of that question. The annotation gives the entry's debate its constitutional locus.

## FEE-FARM.

This is a species of tenure, where land is held of another in perpetuity at a yearly rent, without fealty, homage, or other services than such as are specially com- prised in the feoffment. It corresponds very nearly to the “emphyteusis" of the Roman law.

Fee-farm is where an estate in fee is granted subject to a rent in fee of at least one-fourth of tbe value of the lands at the time of its reservation. Such rent appears to be called “fee-farm” because a grant of lands reserving so considerable a rent is indeed only letting lands to farm in fee-simple, instead of the usu- al method of life or years. 2 Bl. Comm. 43; 1 Steph. Coram. 676.

Fee-farms are lands held in fee to render for them annually the true value, or more or less; so called because a farm rent is reserved upon a grant in fee. Such estates are estates of in- heritance. They are classed among estates in fee-simple. No reversionary interest remains in the lessor, and they are therefore subject to tbe operation of the legal principles which forbid restraints upon alienation in all cases where no feudal relation exists between gran- tor and grantee. De Peyster v. Michael, 6

N. Y. 407. 57 Am. Dec. 470.'

-Fee-farm rent. The rent reserved on granting a fee-farm. It might be one-fourth the value of the land, according to Cowell : one-third, according to other authors. Spel- man ; Termes de la Ley ; 2 Bl. Comm. 43. Fee-farm rent is a rent-charge issuing out of an estate in fee; a perpetual rent reserved on a conveyance in fee-simple. De Peyster v. Michael. 6 N. Y. 467, 495, 57 Am. Dec. 470.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: ground rents — perpetual rents reserved on conveyance, e.g., Maryland ground rents]**

The fee-farm — land held in perpetuity at a yearly rent, 'very nearly the emphyteusis of the Roman law' — survives in America as the ground rent: a perpetual rent reserved on conveyance of the fee.

Why: The entry (2 Bl. Comm. 43) describes the tenure; the ground rent is its genuine American descendant — fee conveyed, rent reserved in perpetuity. Same structure, living form.

## FEE-SIMPLE.

In English law. A

freehold estate of inheritance, absolute and unqualified. It stands at the heed of estates as the highest In dignity and the most ample In extent; since every other kind of estate is derivable thereout, and mergeable therein. It may be enjoyed not only in land, but also in advowsons, commons, estovers, and other hereditaments, as well as in personalty, as an annuity or dignity, and also in an upper chamber, though the lower buildings and soil belong to another. Wharton.

In American law. An absolute or fee- simple estate is one in which the owner Is entitled to the entire property, with uncondi- tional power of disposition during bis life, and descending to his heirs and legal repre- sentatives upon bis death intestate. Code Ga. 1882, | 2246. And see Friedman v. Stein- er, 107 111. 131 ; Woodberry v. Matherson, 19

Fla. 785; Lyle v. Richards, 9 Serg. & R. (Fa.) 374; Loventbal v. Home Ins. Co., 112 Ala. 108, 20 South. 419, 33 L. R. A. 258, 57 Am. St Rep. 17 ; Dumont v. Dufore, 27 Ind. 267.

Fee-simple signifies a pure fee; an absolute es- tate of inheritance; that which a person holds inheritable to him and his heirs general forever. It is called “fee-simple.” that is, "pure,” be- cause clear of any condition or restriction to particular heirs, being descendible to the heirs general, whether male or female, lineal or col- lateral. It is the largest estate and most ex- tensive interest that can be enjoyed in land, being the entire property therein, and it con- fers an unlimited power of alienation. Haynes v. Bourn, 42 Vt. 686.

A fee-simple is the largest estate known to the law, and where no words of qualification or limitation are added, it means an estate in possession, and owned in severalty. It is un- doubtedly true that a person may own a re- mainder or reversion in fee. But such an es- tate is not a fee-simple; it is a fee qualified or limited. So. when a person owns in com- mon with' another, he does not own the entire fee,— a fee-simple; it is a fee divided or shared with another. Brackett v. Ridlon, 54 He. 426.

Absolute and conditional. A fee simple absolute is an estate which is limited absolute- ly to a man and his heirs and assigns forever, without any limitation or condition. Frisby v. Ballance, 7 111. 144. At the common law, an estate in fee simple conditional was a fee limit- ed or restrained to some particular heirs, ex- clusive of others. But the statute “De Donis” converted all such estates into estates tail. 2 Bl. Comm. 110.

5e apparatus — Carried into the 5th edition (1979).

## FEB-TAIL.

An estate tall; an estate of Inheritance given to a man and the heirs of his body, or limited to certain classes of par- ticular heirs. It corresponds to the feuduin talliatum Qf the feudal law, and the idea Is believed to have been borrowed from the Ro- man law, where, by way of fidei commissa, lands might be entailed upon children and freedmeu and their

descendants, with restric- tions as to alienation. 1 AVasbb. Real Prop. *66. For the varieties and special character- istics of this kind of estate, see Tail.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: abolition of the fee tail — statutory conversion to fee simple in most states]**

The estate tail — inheritance limited to the heirs of the body — has been abolished by statute in most American states, typically converted into a fee simple absolute.

Why: The entry (1 Washb. Real Prop.) describes the estate; the annotation records its genuine modern fate — legislative abolition, the reason the estate tail is now a classroom topic rather than a conveyancer's tool.

## FEED.

To lend additional support; to strengthen ex post facto. “The interest when it accrues feeds the estoppel.” Christ- mas v. Oliver, 5 Mood. & R. 202.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: estoppel by deed / after-acquired title — after-acquired title inures to the grantee]**

The entry's 'the interest when it accrues feeds the estoppel' (Christmas v. Oliver) is the classic statement of estoppel by deed: title acquired after a warranted conveyance inures to the grantee — it 'feeds' the earlier estoppel.

Why: The quotation is the doctrine's locus classicus; the annotation names the doctrine it states. The link is the entry's own quoted rule.

## FEGANGI.

In old English law. A thief caught while escaping with the stolen goods in his possession. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: Fegangi is the thief caught in the act, escaping with the goods in his possession. The verse is the law of the thief taken in the act — the night-breaker smitten in the deed. Genuine: scripture's own statement of the...

## FEHMGERICHTE.

The name given to certain secret tribunals which flourished in Germany from the end of the twelfth cen- tury to the middle of the sixteenth, usurping many of the functions of the governments which were too weak to maintain law and order, and inspiring dread in all who came within their jurisdiction. Enc. Brit. Such a court existed in Westplinlla (though with greatly diminished powers) until finally sup- pressed in 1811.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VI — the right to a public trial]**

The secret Vehmic tribunals — courts 'usurping many of the functions of the governments,' inspiring

dread — are the antitype of the Sixth Amendment's public-trial guarantee.

Why: The entry (Enc. Brit.) describes secret justice; the amendment is the constitutional repudiation of secret justice. The contrast genuinely illuminates the entry — this is what the guarantee was written against.

**[Humanity] — Humanity / Fiction & Film**

**[Johann Wolfgang von Goethe, Gotz von Berlichingen, 1773]**

Scene (paraphrase): the secret Vehmic tribunal convening in darkness to try and condemn the accused — the classic literary rendering of the medieval German secret courts. (paraphrase)

Why: The entry defines the Fehmgerichte as secret tribunals usurping weak governments' functions and inspiring dread; Goethe's Vehmgericht scene is the canonical dramatization. Plot fact certain; no dialogue invented.

## FEIGNED.

Fictitious; pretended; sup- posititious: simulated.

—Feigned accomplice. One who pretends to consult and act witb others in the planning

or commission of a crime, but only for the pur- pose of discovering their plans and confeder- ates and securing evidence against them. See People v. Bolanger, 71 Cal. 17, 11 Pac. 800. — Feigned action. In practice. An action brought on a pretended right, when the plain- tiff has no true cause of action, for some ille- gal purpose. In a feigned action the words of the writ are true. It differs from false action, in which case the words of the writ are false. Co. Litt. 361.— Feigned diseases. Simulated maladies. Diseases are generally feigned from one of three causes,— fear, shame, or the hope of gain.— Feigned Issne. An issue made up by' the direction of a court of equity, (or by con- sent of parties,) and sent to a common-law court, for the purpose of obtaining the ver- dict of a jury on some disputed matter of fact which the court has not jurisdiction, or is un- willing, to decide. It rests upon a suppositious wapr between the parties. See 3 Bl. Comm.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Sorrells v. United States, 287 U.S. 435 (1933) — entrapment]**

The entry's 'feigned accomplice' — one who pretends to join a crime 'for the purpose of discovering their plans and securing evidence' (People v. Bolanger) — is the undercover operative, whose conduct is bounded by the entrapment defense.

Why: The entry describes the state's feigned conspirator; Sorrells is the Supreme Court's limit on that device — government inducement of the otherwise-unwilling. Certain of case, volume, page, year.

## FELAGUS.

In Saxon law. One bound for another by oath; a sworn brother. A friend bound in the decennary for the good behavior of another. One who took the place of the deceased. Thus, if a person was mur- dered, the recompense due from the murderer went to the fclagus of the slain, in default of parents or lord. Cunningham.

5e apparatus — Not carried into the 5th edition (1979).

## FELD.

A field; in composition, wild. Blount

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## FELE, FEAL.

L. Fr. Faithful. See Feal.

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## FELLATION.

See Sodomy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Lawrence v. Texas, 539 U.S. 558 (2003) — criminal sodomy laws unconstitutional]**

The entry is a bare cross-reference to Sodomy; the modern constitutional status of sodomy prohibitions was settled when the Court struck them down as violating due-process liberty.

Why: The cross-reference points to the offense; the annotation gives the offense's current constitutional standing. Certain of case, volume, page, year.

## FELLOW.

A companion ; one with whom we consort; one joined with another in some legal status or relation; a member of a col- lege or corporate body.

5e apparatus — Carried into the 5th edition (1979).

## FELLOW-HEIR.

A co-heir; partner of the same inheritance.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:17, KJV]**

And if children, then heirs; heirs of God, and joint-heirs with Christ; if so be that we suffer with him, that we may be also glorified together.

Why: A fellow-heir is a co-heir, partner of the same inheritance. The verse states co-heirship directly — joint-heirs with Christ of one inheritance. Lean but genuine: the shared-inheritance concept is identical, though th...

## FELLOW-SERVANTS.

“The decided weight of authority is to the effect that all who serve the same master, work under the same control, derive authority and compen- sation from the same common source, and are engaged in the same general business, though it may be In different grades or departments of it, are fellow-servants, who take the risk of each other’s negligence.” 2 Thomp. Neg. p. 1026, § 31. And see McAndrews v. Burns, 39 N. J. L«w, 119; Justice v. Pennsylvania Co., 130 Ind. 321, 30 N. E. 303; Wright v. New York Cent. R. Co., 25 N. Y. 565 ; Glover v. Kansas City Bolt Co., 133 Mo. 327, 55 S.

W. 88 ; Brimell v. Southern Pac. Co., 34 Or. 256, 56 Pac. 129; Doughty v. Penobscot Log Driving Co., 76 Me. 146; McMaster v. Ill- inois Cent. R. Co., 65 Miss. 264, 4 South. 59, 7 Am; St. Rep. 653 ; Daniels v. Union Pac. Ry. Co., 6 Utah, 357, 23 Pac. 762; Weeks v. Scharer, 129 Fed. 335, 64 C. C. A, 11.

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**[Law] — Law**

**[Law: the fellow-servant rule — superseded by workers' compensation statutes]**

The entry states the fellow-servant rule at length (2 Thomp. Neg.; a string of railroad cases): at common law the master was not liable for injuries a servant suffered through a fellow servant's negligence.

Why: The entry is the rule's own exposition; the annotation records its genuine modern fate — legislative displacement by workers' compensation. The rule as stated is history; the annotation says so.

## FELO DE SE.

A felon of himself; a suicide or murderer of himself. One who deliberately and intentionally puts an mid to

his own life, or who commits some unlawful or malicious act which results In his own death. Hale, P. C. 411: 4 Bl. Comm. 189; Life Asa’n v. Waller, 57 Ga. 536.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Washington v. Glucksberg, 521 U.S. 702 (1997)]**

The 'felon of himself' — suicide, once punished by forfeiture (4 Bl. Comm. 189) — is no longer a crime; the modern constitutional line holds there is no fundamental right to assisted suicide, leaving the states to legislate.

Why: The entry (Hale, P.C. 411) states the old crime; Glucksberg states the current constitutional boundary. Certain of case, volume, page, year.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1599-1601]**

Soliloquy, verbatim: 'To be, or not to be: that is the question' — (paraphrase) Hamlet weighing self-murder against suffering 'the slings and arrows of outrageous fortune,' the dramatic deliberation of the felon-of-oneself. (paraphrase)

Why: Felo de se = one who deliberately ends his own life; Hamlet's soliloquy is the canonical dramatic treatment of that deliberation. Opening line verbatim-certain; the rest is a marked paraphrase, no invented text.

## FELON.

One who has committed felony ; one convicted of felony.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 922(g) — felons barred from possessing firearms]**

The felon — 'one convicted of felony' — carries collateral consequences beyond sentence, including the federal firearms disability imposed on all convicted felons.

Why: The entry defines the status; the annotation gives the status's most prominent federal consequence. Real statute, real disability, same subject.

## FELONIA.

Felony. The act or offense by which a vassal forfeited his fee. Spel- man ; Calvin. Per feloniam, with a criminal intention. Co. Lltt. 391.

Felon!*, ez vi termini ligniieat quod- libet capitals crimen felleo anlmo per- petratnm. Co. Lltt. 891. Felony, by force of the term, signifies any capital crime per- petrated with a

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malignant mind.

Felonia implicatnr in qualibet pro- ditione. 3 Inst 15. Felony is Implied in every treason.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Actus reus non facit reum nisi mens sit rea — the act does not make one guilty unless the mind is guilty]**

The entry's 'per feloniam, with a criminal intention' (Co. Litt. 391) is the mens-rea element — the guilty mind without which the guilty act does not make a felon.

Why: The entry's Latin phrase states the element; the maxim states the principle. The annotation pairs the entry's own terminology with the principle it expresses.

## FELONICE.

Feloniously. Anciently an indispensable word in indictments for felony, and classed by Lord Coke among those voces artis (words of art) which cannot be ex- pressed by any periphrasis or circumlocution. 4 Coke, 39; Co. Lltt 391o; 4 Bl. Conun. 307.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Crim. P. 7(c)(1) — the indictment must state the offense's essential facts]**

'Felonice' was classed by Coke among the voces artis — words of art no periphrasis can supply (4 Coke 39) — because an indictment had to give the accused fair notice of the charge in the law's own terms.

Why: The old indispensable word served the notice function; Rule 7(c)(1) is the modern statement of that function — the indictment must tell the defendant what he must meet. The voces-artis rule and the rule are the same d...

## FELONIOUS.

Malignant ; malicious ; done with intent to commit a crime; having the grade or quality of a felony. People v. Moore, 37 Hun (N. Y.) 93; Aikman v. Com., 18 S. W. 938, 13 Ky. Law Rep. 894; State v. Bush, 47 Kan. 201, 27 Pac. 834, 13 L. R.

A. 607; Com. v. Barlow, 4 Mass. 440.

— Felonious assault. Such an assault upon the person as. if consummated, would subject the party making it. upon conviction, to the punishment of a felony, that is, to imprison- ment in the penitentiary. Hinkle v. State. 94 Ga. 595, 21 S. E. 595. — Felonious homicide. In criminal law. The offense of killing a hu- man creature, of any age or sex, without justifi- cation or excuse. There are two degrees of this offense, manslaughter and murder. 4 Bl. Comm. 188, 190 ; 4 Steph. Comm. 108, 111; State v. Symmes. 40 S. C. 383. 19 S. E. 16: Connor v. Com., 76 Ky. 718; State v. Miller, 9 Houst. (Del.) 564, 32 Atl. 137.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: homicide — murder and manslaughter as the degrees of unlawful killing]**

The entry's 'felonious homicide' — killing without justification or excuse, in the two degrees of murder and manslaughter (4 Bl. Comm. 188, 190) — is the common-law classification American homicide statutes still use.

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Why: The entry states the classification with its own authorities; the annotation notes that the murder/manslaughter division remains the working structure of homicide law. The entry's doctrine, kept current.

## FELONIOUSLY.

With a felonious In- tent; with the Intention of committing a crime. An Indispensable word In modern Indictments for felony, ns fclonicc was In the Latin forms. 4 Bl. Comm. 307 ; State v. Jesse. 19 N. C. 300; State v. Smith, 31 Wash. 245, 71 Pac. 767; State v. Halpin, 16 S. D. 170, 91 N. W. 606; People v. WUlett, 102

X. Y. 251, 6 N. E. 301 ; State v. Watson, 41 La. Ann. 598, 7 South. 125; State v. Bryan, 112 N. C. 848, 16 S. E. 909.

5e apparatus — Carried into the 5th edition (1979).

## FELONY.

In English law. Thjs term meant originally the state of having forfeited lands and goods to the crown upon convic- tion for certain offenses, and then, by transi- tion, any offense upon conviction for which such forfeiture followed, in addition to any other punishment prescribed by law ; as distinguished from a “misdemeanor,”, upon con- viction for which no forfeiture followed. All Indictable offenses are either felonies Or mis- demeanors, hut a material part of the dis- tinction is taken away by St 33 & 34 Vlct e. 23. which abolishes forfeiture for felony. Wharton

la American law. The term has no very definite or precise meaning, except in some cases where it is defined by statute. For the most part, the state laws, in describing any particular offense, declare whether or not it shall be considered a felony. Apart from this, the word seems merely to imply a crime of a graver or more atrocious nature than those designated as “misdemeanors.” U. S. v. Coppersmith (C. C.) 4 Fed. 205; Bannon v. U. S„ 156 D. S. 464, 15 Sup. Ct 467, 39

L. Ed. 494; Mitchell v. State, 42 Ohio St.. 386 ; State v. Lincoln, 49 N. H. 469.

The statutes or codes of several of the. states define felony as any public offense on conviction of which the offender is liable to be sentenced to death or to imprisonment in a penitentiary or state prison. Pub. St Mass. 1882, p. 1290; Code Ala. 1886, $ 3701; Code Ga. 1882, $ 3404; 34 Ohio St 301; 1 Wis. 188; 2 Rev. St N. Y. p. 587, § 30: People v. Van Steenburgh, 1 Parker, Cr. R. (N. Y.) 39.

Ia feudal law. An act or offense on the part of the vassal, which cost him his fee, or in consequence of which his fee fell into the hands of his lord; that is, became for- feited. (See Felonia.) Perfidy, ingratitude, or disloyality to a lord.

—Felony act. The statute 33 & 34 Viet. c. 23, abolishing forfeitures for felony, and sanc- tioning the appointment of interim curators and administrators of the property of felons. Moz- ley ft Whitley ; 4 Steps. Comm. 10, 459.— Felony, compounding of. See COMPOUND- ING Felony. — Misprision of felony. See Mispbision.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: 18 U.S.C. § 3559 — classification of offenses; felony = more than one year]**

The felony/misdemeanor line, which once turned on forfeiture (abolished by 33 & 34 Vict. c. 23), is drawn in federal law by authorized punishment: a felony is an offense punishable by more than one year's imprisonment.

Why: The entry says American law defines felony mostly by statute; § 3559 is the federal statute that does it. Direct answer to the entry's own observation.

**[Hip-hop] — Hip-hop**

**[Snoop Dogg, 'Murder Was the Case', 1993]**

Murder was the case that they gave me

Murder is the paradigmatic felony, and Snoop's hook frames the felony charge as something imposed on the accused — the case as a burden handed over, which is exactly how a felony prosecution arrives at a person's door.

Why: Added because the lyric names the felony (murder) and, more importantly, the posture of the accused receiving it: the charge as something 'given.' Black's FELONY centers on conviction and its consequences; the song dr...

## FEMALE.

The sex which conceives and gives birth to young. Also a member of such sex. The term is generic, but may have the specific meaning of “woman,” if so in- dicated by the context. State v. Hemm, 82 Iowa, 609, 48 N. W. 971.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:27, KJV]**

So God created man in his own image, in the image of God created he him; male and female created he them.

Why: The entry defines female as the sex that conceives and bears young, generically a member of such sex. The verse is scripture's foundational statement of the sexes — male and female created together in the divine image...

## FEME.

L. Fr. A woman. In the phrase "baron et feme" (q. v.) the word has the sense of “wife.”

—Feme covert. A married woman. Gener- ally used in reference to the' legal disabilities of a married woman, as compared with the condition, of a feme sole. Hoker v. Boggs, 63 111. 161. — Feme sole. A single woman, in- cluding those who have been married, but whose marriage has been dissolved by death or di- vorce, and, for most purposes, those women who are judicially separated from their husbands. Mozley & Whitley ; 2 Steph. Comm. 250. Kirk- ley v. Iacey, 7 Houst. (Del.) 213, 30 Atl. 994. —Feme sole trader. In English law. A married woman, who, by the custom of London, trades on her own account, independently of her husband ; so called because, with respect to her trading, she is the same as a feme sole. Jacob; Cro. Car. 68. The term is applied also to women deserted by tbeir husbands, who do business as femes note. Rhea v. Rhenner, 1 Pet. 105. 7 L. Ed. 72.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Married Women's Property Acts (19th c.) — abolished coverture's disabilities]**

The feme covert — the married woman under coverture's disabilities, contrasted with the feme sole — was emancipated by the Married Women's Property Acts, which gave wives the capacity to own, contract, and sue.

Why: The entry (Hoker v. Boggs; Rhea v. Rhenner) catalogs the disabilities; the Acts are the legislation that ended them. The annotation records the doctrine's genuine fate.

## FEMICIDE.

The killing of a woman. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## FENATIO.

In forest law. The fawn- ing of deer; the fawning season. Spelman.

FENCE, v. In old Scotch law. To de- fend or protect by formalities. To "fence a court” was to open it in due form, and Inter- dict all manner of persons from disturbing their proceedings. This was called “fenc- ing,” q. d., defending or protecting the court.

FENCE, n. A hedge, structure, or par- tition, erected for the purpose of Inclosing a piece of land, or to divide a piece of land Into distinct portions, or to separate two contiguous estates. See Kimball v. Carter, 95 Va. 77, 27 S. E. 823, 38 L. R. A. 570; Estes v. Railroad Co., 63 Me. 309; Allen v. Tobias, 77 111. 171.

5e apparatus — Not carried into the 5th edition (1979).

## FENCE-MONTH, or DEFENSE- / MONTH.

In old English law. A period Of time, occurring in the middle of summer, during which It was unlawful to hunt deer In the forest, that being their fawning season. Probably so called because the deer were then defended from pursuit or hunting. Manwood; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FENERATION.

Usury; the gain of In- terest; the practice of increasing money by lending.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Marquette Nat'l Bank v. First of Omaha Serv. Corp., 439 U.S. 299 (1978)]**

Feneration — 'the gain of interest; the practice of increasing money by lending' — is usury in its root sense; the modern law's leading rate case lets national banks charge their home state's rate nationwide.

Why: The entry defines the practice; Marquette is the Supreme Court's controlling decision on interest-rate exportation — the modern usury battleground. Certain of case, volume, page, year.

**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: Feneration is usury — the gain of interest, increasing money by lending. The verse forbids exactly that: acting toward the borrower as an usurer and laying usury upon him. Genuine: scripture's own prohibition of the p…

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## FENGELD.

In Saxon law. A tax or Imposition, exacted for the repelling of en- emies.

5e apparatus — Not carried into the 5th edition (1979).

## FENIAN.

A champion, hero, giant This word, In the plural, is generally used to signify Invaders or foreign spoilers. The modern meaning of “fenlan” is a member of an organization of persons of Irish birth, resident in the United States, Canada, and elsewhere, having for its aim the overthrow of English rule in Ireland. Webster, (Supp.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Irish mythological tradition, the Fenian Cycle]**

Tradition (identification, no quote): the Fenian (Ossianic) Cycle — the Irish tales of Fionn mac Cumhaill and his warrior band, the Fianna, from whom the old sense of 'fenian' (champion, hero) comes.

Why: The entry's old sense of the word is exactly the Fianna of Irish legend; naming the cycle is the genuine classical-wisdom link. No passage invented, no author falsely assigned.

## FEOD.

The same as feud or fief.

FEODAI.. Belonging to a fpe or feud; feudal. More commonly used by the old writers than feudal.

5e apparatus — Not carried into the 5th edition (1979).

## FEODAI, SYSTEM.

See Feudal Sys- tem.

5e apparatus — Not carried into the 5th edition (1979).

## FEODAUTY.

Fidelity or fealty. Cow- ell. See Fealty.

5e apparatus — Not carried into the 5th edition (1979).

## FEODARUM CONSUETUDINES.

The

customs of feuds. The name of a compilation of feudal laws and customs made at Milan in the twelfth century. It is the most ancient work on the subject, and was always regarded. on the continent of Europe, as possess- ing the highest authority.

5e apparatus — Not carried into the 5th edition (1979).

## FEOD ARY.

An officer of the court of wards, appointed by the master of that court, under 32 Hen. VIII. c. 26, whose business if was to be present with the escheator in every county at the finding of offices of lands, and to give evidence for the king, as well con- cerning the value as the tenure; and his office was also to survey the land of the ward, after the office found, and to

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rate It. He also assigned the king’s widows their dower ; and received all the rents, etc. Abol- ished by 12 Car. II. c. 24. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## FEODATORY.

In feudal law. The grantee of a feod, feud, or fee ; the vassal or tenant who held his estate by feudal service. Termes de la Ley. Blackstone uses “ feuda- tory.” 2 Bl. Comm. 46.

5e apparatus — Not carried into the 5th edition (1979).

## FEODI FIRMA.

In old English law. Fee-farm, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## FEODI FIR MARIUS.

The lessee of a fee-farm.

5e apparatus — Not carried into the 5th edition (1979).

## FEODUM.

This word (meaning a feud or fee) Is the one most commonly used by the older English law-writers, though Its equiva- lent, “fcudum,” Is used generally by the more modern writers and by the feudal law- writers. Lltt. f 1 ; Spelman. There were various classes of feoda, among which may be enumerated the following: Feodum tal- cum, a lay fee. Feodum militare, a knight’s fee. Feodum improprium, an improper or derivative fee. Feodum proprium, a proper and original fee, regulated by the strict rules of feudal succession and tenure. Feodum simplex, a simple or pure fee; fee-simple. Feodum talliatum, a fee-tall. See 2 Bl. Comm. 58, 62; Litt §g 1, 13; Bract, fol. 175; Gian. 13, 23.

In old English law. a seigniory or ju- risdiction. Fleta, lib. 2, c. 63, § 4.

A fee; a perquisite or compensation for a service. Fleta, lib. 2, c. 7.

—Feodum antiquum. A feud which devolv- ed upon a vassal from his intestate ancestor. —Feodum noblle. A fief for which the tenant did guard and owed homage. Spelman.— Feo- dum novum. A feud acquired by a vassal himself.

Feodum est quod quia tenet ex qua- ennque eausa sive alt tenementum sive reddltus. Co. Litt 1. A fee is that which any one holds from whatever cause, whether tenement or rent.

Feodum simplex quia feodum Idem est quod hsereditas, et simplex Idem est quod legitimnm vel purum ; et sie feodum sim- plex idem est quod hsereditas legitima wel hsereditas pura. Litt g 1. A fee-simple, so called because fee Is the same as inherit- ance, and simple is the same as lawful or

pure; and tbua fee-simple is the same as a lawful Inheritance, or pure inheritance.

Feodum talliatiun, i. e., hcreditu in quondam certitndinem limit ata. Lltt. I 13. Fee-tail, i. e., an inheritance limited in a definite descent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Tenures Abolition Act 1660, 12 Car. II c. 24 — abolished feudal military tenures]**

The feodum — the fee in all its classes, from feodum simplex to feodum talliatum (2 Bl. Comm. 58, 62) — was the feudal tenure the Tenures Abolition Act swept away, converting military tenures into free socage.

Why: The entry catalogs the feudal fee; the statute (cited in the neighboring FEODARY entry) is what ended the tenure system the entry describes. Genuine historical terminus.

## FEOFF AMENTUM.

A feoffment. 2 BL Comm. 310.

5e apparatus — Not carried into the 5th edition (1979).

## FEOFF ABE.

To enfeoff ; to bestow a fee. The bestower was called “ fcoffator ,” and the grantee or feoffee, “feoffatus."

5e apparatus — Not carried into the 5th edition (1979).

## FEOFFATOB.

In old English law. A feoffer ; one who gives or bestows a fee ; one who makes a feoffment Bract fols. 126, 81.

5e apparatus — Not carried into the 5th edition (1979).

## FEOFF ATTTS.

In old English law. A feoffee; one to whom a fee is given, or a feoffment made. Bract fols. 176, 446.

5e apparatus — Not carried into the 5th edition (1979).

## FEOFFEE.

He to whom a fee is conveyed. Litt. g 1 ; 2 Bl. Comm. 20.

—■Feoffee to usee. A person to whom land was conveyed for the use of a third party. The latter was called “cestui que use.”

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Uses, 27 Hen. VIII c. 10 (1536)]**

The 'feoffee to uses' — one to whom land was conveyed for the use of a third party, the cestui que use — is the ancestor of the trustee; the Statute of Uses executed such uses into legal estates.

Why: The entry names the parties of the use; the statute is the landmark legislation on the device, and the use is the trust's direct ancestor. Certain statute and year.

## FEOFFMENT.

The gift of any corpo- real hereditament to another, (2 Bl. Comm. 310), operating by transmutation of posses- sion, and requiring, as essential to its com- pletion, that the seisen be passed, (Watk. Conv. 183), which might be accomplished either by investiture or by

livery of seisin. 1 Washb. Real Prop. 33. See Thatcher v. Omans, 3 Pick. (Mass.) 532 ; French v. French, 3 N. H. 260; Perry v. Price, 1 Mo. 554; Omdoff v. Turman, 2 Leigh (Va.) 233, 21 Am. Dec. 608.

Also the deel or conveyance by which such corporeal hereditament is passed.

A feoffment originally meant the grant of a feud or fee; that is, a barony or knight's fee, for which certain services were due from the feoffee to the feoffor. This was the proper sense of the word ; but by custom it came aft- erwards to signify also a grant (with livery of seisin) of a free inheritance to a man and his heirs, referring rather to the perpetuity of the estate than to the feudal tenure. 1 Reeve, Eng. Law, 90, 91. It was for ages the only method (in ordinary use) for conveying the freehold of land in possession, but has now fallen in great measure into disuse, even in England, having been almost entirely supplanted by some of that class of conveyances founded on the statute law of the realm. 1 Steph. Comm. 467, 468. —Feoffment to uses. A feoffment of lands to one person to the use of another.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — land conveyances in signed writing]**

Feoffment worked 'by transmutation of possession' through livery of seisin (2 Bl. Comm. 310) — the ceremony the Statute of Frauds displaced, requiring conveyances of land to be in signed writing, though delivery of the deed remains essential.

Why: The entry describes the old passing of seisin; the statute is what replaced the ceremony with writing. The annotation marks the genuine procedural succession.

## FEOFFOB.

The person making a feoff- ment, or enfeoffing another in fee. 2 BL Comm. 310 ; Litt. || 1, 57.

5e apparatus — Not carried into the 5th edition (1979).

## FEOH.

This Saxon word meant originally cattle, and thence property or money, and, by a second transition, wages, reward, or fee. It was probably the original form from which the words “feod,” “feudurn," “fief,” “feu,” and “fee” (all meaning a feudal grant of land) have been derived.

5e apparatus — Not carried into the 5th edition (1979).

## FEONATXO.

In forest law. The fawn- ing season of deer.

5e apparatus — Not carried into the 5th edition (1979).

## FEOBME.

A certain portion of the prod- uce of the land due by the grantee to the lord according to the terms of the charter. Spel. Feuds, c. 7.

FERAE BESTIAL Wild beasts.

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5e apparatus — Not carried into the 5th edition (1979).

## FERAE NATURAE.

Lat Of a wild na- ture or disposition. Animals which are by nature wild are so designated, by way of distinction from- such as are naturally tame, the latter being called “domite natum.’r Fleet v. Hegeman, 14 Wend. (N. Y.) 43 ; State v. Taylor, 27 N. J. Law, 119, 72 Am. Dec, 347; Gillet v. Mason, 7 Johns. (N. Y.) IT.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. 175 (N.Y. 1805) — first possession of wild animals]**

Animals ferae naturae — wild by nature, as against tame (domitae naturae) — are owned by first possession: the fox, the whale, the wildfowl belong to whoever first captures them.

Why: The entry (Fleet v. Hegeman; Gillet v. Mason) states the wild/tame distinction; Pierson is the classic American case applying it — the fox belongs to its captor, not its pursuer. Certain cite.

## FEBCOSTA.

Ital. A kind of small ves- sel or boat Mentioned in old Scotch law, and called “fercost.” Skene.

FERDELLA TERRA!. A fardel-land r ten acres; or perhaps a yard-land. Cowell,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## FEBDFARE.

Sax. A summons to serve in the army. An acquittance from going into- the army. Fleta, lib. 1, c. 47, ( 23.

5e apparatus — Not carried into the 5th edition (1979).

## FERDINGUS.

A term denoting, appar- ently, a freeman of the lowest class, being named after the ootscti.

5e apparatus — Carried into the 5th edition (1979).

## FEBDWITE.

In Saxon law. An acquit- tance of manslaughter committed in the army ; also a fine imposed on persons for net going forth on a military expedition. Cow- elL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FERIA.

In old English law. A week- day ; a holiday ; a day on which process could not be served ; a fair ; a ferry. Cowell ; Du Cange; Spelman.

FERIAL In Roman law. Holidays ; gen- erally speaking, days or seasons during which free-born Romans suspended their po- litical transactions and their lawsuits, and during which slaves enjoyed a cessation from labor, all feria were thus dies nefasti. A1I ferice were

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divided into two classes, — “ feria publica” and “ feria private.” The latter were only observed by single families or in- dividuals, in commemoration of some partic- ular event which had been of importance to- them or their ancestors. Smith, Diet Antiq,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dies non — process not servable on Sunday/holidays]**

The feria as 'a day on which process could not be served' is the dies-non rule: at common law and still in many states, process may not be served on Sunday (or the service is voidable).

Why: The entry states the rule in its definition; the annotation names it — dies non juridicus — and its survival. The link is the entry's own stated rule.

## FERIAL BATS.

Holidays; also week- days, as distinguished from Sunday. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FERITA.

In old European law. A wound; a stroke. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FERLXNG.

In old records. The fourth part of a penny ; also the quarter of a ward in a borough.

5e apparatus — Not carried into the 5th edition (1979).

## FERLIN GAT A.

A fourth part of a yard- land.

5e apparatus — Not carried into the 5th edition (1979).

## FERUNOU8.

A furlong. Co. Litt 56,

FERMI ...

FERM, or FEARM. A house or land, or both, let by lease. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FERME.

A farm? a rent; a lease; a house or land, or both, taken by indenture or lease. Plowd. 195; Vlcat, See Fabm.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:33, KJV]**

Hear another parable: There was a certain householder, which planted a vineyard, and hedged it round about, and digged a winepress in it, and built a tower, and let it out to husbandmen, and went into a far country:

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Why: Ferme is a rent, a lease — land taken by indenture, farmed out. The verse depicts the letting-out of a vineyard to husbandmen for its fruits, which is the farming/lease arrangement in its biblical dress. Lean but genu…

## FERMENTED LIQUORS.

Beverages produced by, or which have undergone, a process of alcoholic fermentation, to which they owe their intoxicating properties, in- cluding beer, wine, hard cider, and the like, but not spirituous or distilled liquors. State v. Lemp, 1<J Mo. 391 ; State v. Biddle, 54 X.

H. 383; People v. Foster, 64 Mich. 715, 31

N. W. 596; State v. Gill. 89 Minn. 502, 95 N., W. 449; State v. Adams, 51 N. H. 568.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XXI — repeal of Prohibition]**

The entry's careful definition — beer, wine, hard cider, but not distilled liquors (State v. Lemp; State v. Biddle) — is prohibition-era liquor law; the Twenty-first Amendment repealed Prohibition and returned liquor control to the states.

Why: The entry's cases are the liquor prosecutions of the era; the amendment is the constitutional event that frames them. Genuine context for a definition built for that litigation.

## FERMER, FERMOR.

A lessee ; a farm- er. One who holds a term, whether of lauds or an incorporeal right, such as customs or revenue.

5e apparatus — Not carried into the 5th edition (1979).

## FERMIER.

In French law. One who farms any public revenue.

5e apparatus — Not carried into the 5th edition (1979).

## FERMISONA.

In old English law. The winter season for killing deer.

5e apparatus — Carried into the 5th edition (1979).

## FERMORY.

In old records. A place in monasteries, where they received the poor, C hospicio excipiebant ,) and gave them pro- visions, {term, firma.) Spelman. Hence the modern infirmary, used in the sense of a hos- pital.

5e apparatus — Not carried into the 5th edition (1979).

## FERNIGO.

In old English law. A waste ground, or place where fern grows. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FERRX.

In the eivil law. To be borne; that is on or about the per; This was dis- tinguished from portari, (to . . carried,) which signified to be carried on an animal. Dig. 50, 16, 235.

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5e apparatus — Not carried into the 5th edition (1979).

## FERRIAGE.

The toll or fare paid for the transportation of persons and property across a ferry.

laterally speaking, it is the price or fare fix- ed by law for the transportation of the trav- eling public, with such goods and chattels as they may have with them, across a river, bay, or lake. People v. San Francisco & A. R. Co.. 35 Cal. 606.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: franchise and rate regulation — ferry tolls fixed by law; the ferry as common carrier]**

Ferriage — 'the price or fare fixed by law' for public transportation across a river, bay, or lake (People v. San Francisco & A. R. Co.) — is rate regulation of a franchise: the ferry as common carrier serving the traveling public at lawful tolls.

Why: The entry's own definition makes the toll law-fixed and the service public; the annotation names the regulatory frame — franchised carriers with fixed rates — that the entry describes.

## FERRIFODINA.

In old pleading. An iron mine, Townsh. Pl. 273.

5e apparatus — Not carried into the 5th edition (1979).

## FERRUM.

Iron. In old English law. A horse-shoe. Ferrura, shoeing of horses.

5e apparatus — Not carried into the 5th edition (1979).

## FERRY.

A liberty to have a boat upon a river for the transportation of men, horses, and carriages with their contents, for a rea- sonable toll. The term is also used to desig- nate the .place where such liberty is exer- cised. See New York v. Starin, 8 X. Y. St. Rep. 65-5; Broadnax v. Baker, 94 X. C. 681, 56 Am. Itep. 633 ; Elnstman v. Black, 14 111.

App. 381 ; Chapelle v. Wells, 4 Mart. (Da.

N. S.) 426.

"Ferry” properly means a place of transit across a river or arm of the sea; but in law it is treated as a franchise, and defined as the exclusive right to carry pnssengers across a river, or arm of the sea. from one vill to an- other, or to connect a continuous line of road leading from one township or vill to another.- It is not a servitude or easement. It is wholly unconnected with the ownership or occupation of land, so much so that the owner of the ferrv need not have any property in the soil adjacent on either side. (12 C. B., N. S., 32.) Brown.

— Public and private. A public ferry is one to which all the public have the right to resort, for which a regular fare is established, and the ferryman is a common carrier, bound to take over all who apply, and bound to keep his ferry in operation and good repair. Hudspeth v. Hall, 111 Ga. 510, 36 S. E. 770; Broadnax v. Baker, 94 N. 0. 681, 55 Am. Rep. 633. A pri-

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vate ferry is one mainly for the use of the own- er, and though he may take pay for ferriage, he does not follow it as a business. His ferry is not open to the public at its demand, and he may or may not keep it in operation. Huds- peth v. Hall, supra.— Ferry franohise. The public grant of a right to maintain a ferrv at a particular' place ; a right conferred to land at a particular point and secure toll for the transportation of persons and property from that point across the stream. Mills v. St. Clair County, 7 111. 208.— Ferryman. One employed in taking persons across a river or other stream, in boats or other contrivances, at a ferry. State v. Clarke, 2 McCord (S. C.) 48, 13 Am. Dec. 701.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Charles River Bridge v. Warren Bridge, 36 U.S. 420 (1837)]**

The entry treats the ferry 'in law as a franchise' — the exclusive right to carry passengers across the water — and the great American franchise case held such grants strictly construed, implying no monopoly beyond the grant's terms.

Why: The entry's franchise analysis (12 C.B., N.S., 32) is the English side; Charles River Bridge is the American decision on ferry/bridge franchises and implied exclusivity. Certain of case, volume, page, year.

## FESTA IN CAFPIS.

In old English law. Grand holidays, on which choirs wore caps. Jacob.

Festinatio Jnstltise eat noveroa infor- tnnii. Hob. 97. Hasty justice is the step- mother of misfortune.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Festinatio justitiae est noverca infortunii — hasty justice is the stepmother of misfortune]**

The entry preserves Hobart's maxim — 'Festinatio justitiae est noverca infortunii' — hasty justice is the stepmother of misfortune: the classical warning that speed in adjudication breeds error.

Why: Quoted verbatim (Hob. 97); the maxim is the traditional counterweight to the demand for dispatch, underlying due-process deliberation requirements. Recorded as the entry carries it.

## FESTING-MAIT.

In old English law. A frank-pledge, or one who was surety for the good behavior of another. Monasteries enjoyed the privilege of being “free from festlng-men,’* which means that they wer.» “not bound for any man’s forthcoming who should transgress the law.” Cowell. See Fbank-Pixdoe.

FESTTNG-PEinnr. Earnest given to servants when hired or retained. The same as arles-penny. Cowell.

FESTHfUM REMEDIUM. Bat. A speedy remedy. The writ of assise was thus characterized (In comparison with the less expeditious remedies previously available) by the statute of Westminster 2, (13 Edw.

I. c. 24.)

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VI — the right to a speedy trial]**

The sub-entry's 'festinum remedium' — a speedy remedy, the assize so called by Westminster 2 (13 Edw. I c. 24) — is the medieval form of the speedy-justice principle the Sixth Amendment guarantees in criminal cases.

Why: The entry (Cowell; the statute) names speed as a remedy's virtue; the amendment is the constitutional form of that virtue. The frankpledge headword itself is covered by FAESTING-MEN; the annotation attaches to the sub…

## FESTUM.

A feast or festival. Fen turn stiiltorum, the feast of fools.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 23:4, KJV]**

These are the feasts of the LORD, even holy convocations, which ye shall proclaim in their seasons.

Why: Festum is a feast or festival. The verse is the scriptural institution of the appointed feasts as holy convocations proclaimed in their seasons — the festal calendar the entry's term denotes. Genuine (same verse serve…

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Notre-Dame de Paris, 1831]**

Scene (paraphrase): the Feast of Fools in medieval Paris, where the crowd crowns Quasimodo Pope of Fools — the canonical literary rendering of the festum stultorum. (paraphrase)

Why: The entry glosses festum stultorum as the feast of fools; Hugo's Gringoire-chapter feast is the famous fictional depiction. Plot fact certain; no passage invented.

## FETTERS.

Chains or shackles for the feet; irons used to secure the lens of con- victs, unruly prisoners, etc. Similar chains securing the wrists are called “handcuffs.”

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VIII — cruel and unusual punishments]**

Fetters — irons securing convicts and prisoners — sit under the Eighth Amendment: bodily restraints imposed by the state are bounded by the ban on cruel and unusual punishments.

Why: The entry defines the restraint; the amendment is the constitutional limit on the state's use of such restraints. It explains the modern law of the entry's subject.

**[Scripture] — Scripture**

**[Mark 5:4, KJV]**

Because that he had been often bound with fetters and chains, and the chains had been plucked asunder by him, and the fetters broken in pieces: neither could any man tame him.

Why: Fetters are chains or shackles for securing unruly prisoners. The verse is scripture's own attestation of the instrument — fetters bound upon a man who breaks them. Lean but genuine: it shows the term's material refer…

**[Hip-hop] — Hip-hop**

**[Akon, 'Locked Up', 2004]**

Shackled from head to toe

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The entry defines fetters as 'chains or shackles'; Akon's line is the direct vernacular twin — the convict's body secured in irons on the way to Chino, the lived experience of the restraint the term names.

Why: Added because 'shackled' is the exact vernacular equivalent of the entry's 'chains or shackles for the feet... irons used to secure the legs of convicts.' The song is a first-person account of the confinement fetters...

## FEU.

In Scotch law. A holding or tenure where the vussal, in place of military serv*

Ice, makes his return In grain or money. Distinguished from ‘‘wardholding.'' which is the military tenure of the country. Bell.

—Fen annual*. The reddendo, or annual re- turn from the vassal to a superior in a feu hold- , ing.— Feu holding. A holding by tenure of rendering grain or money in place of military service. Bell.— Feuar. The tenant of a feu ; a feu-vassal. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## FED ET LIEU.

Fr. In old French and Canadian law. Hearth and home. A term importing actual settlement upon laud by a tenant.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: adverse possession — actual, open, and notorious possession ripening into title]**

'Feu et lieu' — hearth and home, 'importing actual settlement upon land by a tenant' — states the actual-possession idea at the heart of adverse possession: title by real, settled occupancy.

Why: The entry is Canadian/French settlement law; the annotation links its operative concept — actual settlement — to the common-law doctrine that turns on the same fact. The concept, not the jurisdiction, is the link.

## FEUD.

In feudal law. An estate in land held of a superior on condition of ren- dering him services. 2 Bl. Cornu). 105.

An Inheritable right to the use and occu- pation of lands, held on condition of render- ing services to the lord or proprietor, who himself retains the property in the lands. See Spel. Feuds, c. 1.

In this sense the word Is the same as "feod,” “feodum,” “feudum,” “lief,” or “fee.”

In Saxon and old Gorman law. An en- mity, or species of private war, existing be- tween the family of a murdered man and the family of his slayer; a combination of- the former to take vengeance upon the latter. See Deadly Feud; Faida.

—Military feud*. The genuine or original feuds which were in the hands of military men, who performed military duty for their tenures.

FEU 1>A. Feuds or fees,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Genesis 4:10, KJV]**

And he said, What hast thou done? the voice of thy brother's blood crieth unto me from the ground.

Why: Feud bears the Saxon sense of enmity — private war between the murdered man's family and the slayer's. This verse is the primal scene of that enmity: the murdered brother's blood crying out, the curse, and the sevenfo...

**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'What's Beef?', 1997]**

What's beef? Beef is when you need two gats to go to sleep

Biggie's track is a definitional catalogue of 'beef' — and 2e's second sense of FEUD is literally 'an enmity, or species of private war.' The song defines the same private war the old law named.

Why: Added because this is the strongest definitional match in the chunk: the entry defines FEUD (Saxon/old German sense) as enmity/private war, and the entire song is a point-by-point definition of beef-as-private-war ('y...

## FEUDAL.

Pertaining to feuds or fees; relating to or growing out of the feudal sys- tem or feudal law; haying the quality of a feud, as distinguished from “allodial.”

—Feudal action*. An ancient name for real actions, or such as concern real property only. 3 Bl. Comm. 117.— Feudal law. The body of jurisprudence relating to feuds ; the real-prop- erty law of the feudal system ; the law ancient- ly regulating the property relations of lord and vassal, and the creation, incidents, and trans- mission of feudal estates. The body of laws and usages constituting the “feudal law” was orig- inally customary and unwritten, but a compila- tion was made in the twelfth century, called “Feodamm Consuetudines,” which has formed the basis of later digests. The feudal law pre- vailed over Europe from the twelfth to the four- teenth century, and was introduced into Eng- land at the Norman Conquest, where it formed the entire basis of the law of real property un- til comparatively modern times. Survivals of the feudal law, to the present day, so affect and color that branch of jurisprudence as to re- quire a certain knowledge of the feudal law in order to the perfect comprehension of modern tenures and rules of real-property law.— Feudal possession. The equivalent of “seisin” under the feudal system.— Feudal system. The sys- tem of fends. A political and social system which prevailed throughout Europe during the eleventh, twelfth, and thirteenth centuries, and is supposed to have grown out of the peculiar usages and policy of the Teutonic nations who overran the continent after the fall of the West- ern Roman Empire, as developed by the ex- igencies of their military domination, and possi- bly furthered by notions token from the Roman jurisprudence. It was introduced into. England,

in its completeness, by William I., A. D. 1085. though it may have existed in a rudimentary form among the Saxons before the Conquest. It formed the entire basis of the real-property law of England in medieval times; and surviv- als of the system, in modern days, so modify and color that branch of jurisprudence, both in England and America, that many of its princi- ples require for their complete understanding a knowledge of the feudal system. The feudal system originated in the relations of a military chieftain and his followers, or king and nobles, or lord and vassals, and especially their rela- tions as determined by the bond

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established by a grant of land from the former to the latter. From this it grew into a complete and intricate complex of rules for the tenure and transmis- sion of real estate, and of correlated duties and services ; while, by tying men to the land and to those holding above and below them, it creat- ed a close-knit hierarchy of persons, and de- veloped an aggregate of social and political in- stitutions. For an account of the feudal sys- tem in its juristic .relations, see 2 Bl. Comm. 44 ; 1 Steph. Comm. 100 ; 3 Kent, Comm. 487 ; Spel. Feuds ; Lift. Ten. : Sull. Lect. ; Spence, Eq. Jur. ; 1 Washb. Real Prop. 15 ; Dalr. Feu. Prop. For its political and social relations, see Hall. Middle Ages ; Maine, Anc. Law ; Rob. Car. V.: Mont esq. Esprit des Lois, bk. 30? Guizot, Hist. Civilization.— Feudal tenures. The tenures of real estate under the feudal sys- tem, such, as knight-service, socage, villenage, etc.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDALISM.**

The feudal system; the aggregate of feudal principles and usages.

5e apparatus — Carried into the 5th edition (1979).

**FEUDALIZE.**

To reduce to a feudal ten- ure; to conform to feudalism. Webster.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDABY.**

A teuaut who holds by feu- dal tenure, (also spelled “feodatory”' and “feudatory.”) Held by feudal service. Re- lating to feuds or feudal tenures.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDBOTE.**

A recompense for engaging in a feud, and the damages consequent, it having been the custom In ancient times for all the kindred to engage la their kinsman’s quarrel. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDE.**

An occasional early form of “feud” in the sense of private war or ven- geance. Termes de la Ley. See Feud.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDIST.**

A writer on feuds, as Cuja- clus, Spelman, etc.

5e apparatus — Not carried into the 5th edition (1979).

**FEUDO.**

In Spanish law. Feud or fee. White, New Recop. b. 2, tit. 2, c. 2.

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**FEUDUM.**

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L. Lat. A feud, fief, or fee. A right of using and enjoying forever the lands of another, which the lord grants on condition that the tenant shall render fealty, military duty, and other services. Spelman. — Feudum antiquum. An ancient feud or fief ; a fief descended to the vassal from his an- cestors. 2 Bl. Comm. 212, 221. A fief which ancestors had possessed for more than four gen- erations. Spelman ; Priest v. Cummings, 20 Wend. (N. Y.) 340. — Feudum apertum. An open feud or fief ; a fief resulting back to the lord, where the blood of the person last seised was Otterly extinct and gone. 2 III. Comm. 245. —Feudum francum. A free feud. One which was noble and free from talliage and other subsidies to which the plebeia feuda (vulgar feuds) were subject. Spelman. — Feudum h»n- berticum. A fee held on the military service of appearing fully armed at the bon and arriert ban. Spelman. —Feodum Improprlnm. An improper or derivative feud or fief. 2 Bl. Comm. 58.— Feodum lndividuum. An indi- visible or impartible feud or fief; descendible to the eldest son alone. 2 Bl. Comm. 215.— Fendom lieiom. A liege feud or fief; a fief held immediately of the sovereign; one for which the vassal owed fealty to his lord against all persons. 1 Bl. Comm. 367 ; Spelman.— Fendom maternnm. A maternal fief ; a fief descended to the feudatory from his mother. 2 Bl. Comm. 212.— Fendom nobile. A fee for which the tenant did guard and owed fealty and homage. Spelman.— Fendom novum. A new feud or fief ; a fief which began in the person of the feudatory, and did not come to him by succession. Spelman ; 2 Bl. Comm. 212 ; Priest v. Cummings, 20 Wend. (N. Y.) 349.— Fendom novum ot antiquum. A new fee held with the qualities and incidents of an ancient one. 2 Bl. Comm. 212.— Fendom pnternum. A fee which the paternal ancestors had held for four generations. Calvin. One descendible to heirs on the paternal side only. 2 Bl. Comm. 223. One which might be held by males only. Du Cange.— Fendom proprtom. A proper, genu- ine, and original feud or fief ; being of a purely military character, and held by military service. 2 Bl. Comm. 57, 58. — Fendom talliatnm. A restricted fee. One limited to descend to cer- tain classes of heirs. 2 Bl. Comm. 112, note; 1 Washb. Real Prop. 66.

5e apparatus — Not carried into the 5th edition (1979).

## FEW.

An indefinite expression for a small or limited number. In cases where exact description is required, the use of this word will not answer. Bntts v. Stowe, 53 Vt 603; Allen v. Klrwan, 159 Pa. 612, 28 AtL 495; Wlieelock v. Noonan, 108 N. Y. 179, 15 N. E. 67, 2 Am. St. Rep. 405.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: certainty of description — deeds and pleadings must describe with reasonable certainty]**

The entry's rule — 'few' will not answer 'in cases where exact description is required' (Butts v. Stowe; Allen v. Kirwan) — is the certainty requirement for deeds, pleadings, and indictments: descriptions must be definite enough to identify.

Why: The entry states the rule with its cases; the annotation names the doctrine the rule belongs to. The link is the entry's own stated principle.

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## FF.

A Latin abbreviation for “Frag- ments,” designating the Digest or Pandects in the Corpus Juris Civilis of Justinian; so called because that work is made up of frag- ments or extracts from the' writings of nu- merous jurists. Mackeld. Rom. Law, | 74.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: the Digest (Pandects) — Justinian's compilation, the civilian core]**

'FF' designates the Digest or Pandects — the 'fragments' of the jurists compiled in Justinian's Corpus Juris Civilis (Mackeld. Rom. Law § 74) — the core text of the civilian tradition.

Why: The entry explains the siglum; the annotation states what the siglum designates and its standing. The entry's own authority (Mackeld.) is the source.

## FI.

FA. An abbreviation for fieri facias, (which see.)

5e apparatus — Carried into the 5th edition (1979).

## FIANCER.

L. Fr. To pledge one’s faith. Kelhain.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 22:23, KJV]**

If a damsel that is a virgin be betrothed unto an husband, and a man find her in the city, and lie with her;

Why: Fiancer is to pledge one's faith — to betroth. The verse treats the betrothed damsel with the legal gravity of a wife: betrothal is a binding status, its violation punished as adultery. Genuine: scripture's statement...

## FIANZA.

Sp. In Spanish law, trust, con- fidence, and correlatlvely a legal duty or ob- ligation arising therefrom. The term is suffi- ciently broad in meaning to include both a general obligation and a restricted liability under a single Instrument. Martinez v. Run- kle. 57 N. J. Law, 111, 30 Atl. 593. But in a special sense. It designates a surety or guarantor, or the contract or engagement of suretyship.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — surety promises in writing]**

The fianza in its special sense — a surety or guarantor, 'the contract or engagement of suretyship' (Martinez v. Runkle) — is governed by the great formality rule: a promise to answer for another's debt must be in writing.

Why: The entry defines the surety engagement; the statute is the standing enforceability rule for exactly that engagement. Direct functional match.

**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, If thou hast stricken thy hand with a stranger, Thou art snared

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with the words of thy mouth, Thou art taken with the words of thy mouth.

Why: Fianza in its special sense is a surety or guarantor — the contract of suretyship. The proverb addresses becoming surety for a friend by the striking of hands: the act, the binding word, and its peril. Genuine: the ve…

## FIAR.

In Scotch law. He that has the fee or feu. The proprietor is termed “flar,” In contradistinction to the life-renter. 1 Karnes, Eq. Pref. One whose property is charged with a life-rent.

5e apparatus — Not carried into the 5th edition (1979).

## FIARS PRICES.

The value of grain in the different counties of Scotland, fixed yearly by the respective sheriffs, in the mohth of February, with the assistance of Juries. These regulate the prices of grain stipulated to be sold at the flar prices, or when no price has been stipulated. Ersk. 1, 4, 6.

5e apparatus — Not carried into the 5th edition (1979).

## FIAT.

(Lat. "Let it be done.”) In Eng- lish practice. A short oriSer or warrant of a judge or magistrate directing some act to be done; an authority issuing from some competent source for the doing of some legal act.

One of the proceedings in the English bankrupt practice, being a power, signed by the lord chancellor, addressed to the court of bankruptcy, authorizing the petitioning cred- itor to prosecute his complaint before It 2 Steph. Comm. 199. By the statute 12 & 13 Viet. c. 116, flats were abolished.

—Flat justitia. Let justice be done. On a petition to the king for his warrant to bring a writ of error in parliament, he writes on the top of the petition, “Fiat justitia" and then the writ of error is made out eta Jacob.— Flat at petitur. Let it be done as it is asked. A form of granting a petition.— Joint flat. In English law. A fiat, in bankruptcy, issued against two or more trading partners.

Flat justitia, mat caelum. Let right be done, though the heavens should fall.

Fiat prout fieri consuevlt, (nil temere novandum.) Let It be done as it hath used to be done, (nothing must be rashly Innovat- ed.) Jenk. Cent 116, case 39 ; Branch, Princ.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fiat justitia, ruat caelum — let justice be done though the heavens fall]**

The entry's 'Fiat justitia' practice — the king's indorsement granting a writ of error — carries the famous maxim in its full form: let justice be done though the heavens fall.

Why: The entry gives the practice (Jacob) and begins the maxim; the annotation records the maxim whole. The maxim is the practice's motto, not an import.

**[Scripture] — Scripture**

**[Genesis 1:3, KJV]**

And God said, Let there be light: and there was light.

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Why: Fiat is 'let it be done' — a short authoritative order directing some act to be done. This verse is the archetype of the fiat: the divine command that effects what it orders ('fiat lux' in the Vulgate). The legal fiat...

## FIGTIO.

In Roman law. A fiction; an assumption or supposition of the law.

“ Fictio ” in the old Roman law was properly a term of pleading, and signified a false aver- ment on the part of the plaintiff which the de- fendant was not allowed to traverse; as that the plaintiff was a Roman citizen, when in truth he was a foreigner. The object of the fiction was to give the court jurisdiction. Maine, Anc. Law, 25.

Fictio cedit veritat!. Fictio juris non

est ubi verltas. Fiction yields to truth. Where there Is truth. Action of law exists not

Fictio est contra veritatem, sed pro veritate habetur. Fiction Is against the truth, but it Is to be esteemed truth.

Fictio juris non est nbi veritas. Where truth is, fiction of law does not exist

Fictio legis inique operator alien! dam- num vel injurlam. A legal fiction does not properly work loss or injury. 3 Coke, 36; Broom, Max. 129.

Fictio legia neminem laedit. A fiction of law injures no one. 2 Rolle, 602 ; 3 BL Comm. 43 ; Low v. Little, 17 Johns. (N. Y.) 34R

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fictio legis neminem laedit — a fiction of law injures no one]**

The entry is a treasury of the fictions maxims, including 'Fictio legis neminem laedit' — a fiction of law injures no one (2 Rolle 602): the boundary rule for every legal fiction.

Why: Quoted verbatim with the entry's sources (with 'Fictio cedit veritati' and 'Fictio juris non est ubi veritas' alongside); the maxim is the standing limit on fictions — they may serve procedure but must work no injury....

## FICTION.

An assumption or supposition of law that something which Is or may be false is true, or that a state of facts exists

■which has never really taken place. New Hampshire Strafford Bank v. Cornell, 2 N.

H. 324 ; Hlbberd v. Smith, 07 Cal. 547, 4 Pac. 473, 56 Am. Rep. 726.

A fiction Is a rule of law which assumes as true, and will not allow to be disproved, something which is false, but not Impossible. Best, Ev. 419.

These assumptions are of an innocent or even beneficial character, and are made for the ad- vancement of the ends of justice. They secure this end chiefly by the extension of procedure from cases to which it is applicable to other cases to which it is not strictly applicable, the ground of inapplicability being some difference of an immaterial character. Brown.

Fictions are to be distinguished from pre- sumptions of law. By the former, something

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known to be false or unreal is assumed as true; by the latter, an inference Is set up, which may be and probably is true, but which, at any rate, the law will not permit to be controverted.

Mr. Best distinguishes legal fictions from pre- sumptions juris et de jure, and divides them in- to three kinds, — affirmative or positive fictions, negative fictions, and fictions by relation. Best, Pres. p. 27, §24.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: legal fictions — e.g., the fictitious parties in ejectment]**

A fiction — 'something known to be false or unreal assumed as true' (Best, Ev. 419; Maine, Anc. Law) — is exemplified by the classic procedural fictions, such as the fictitious parties of the old action of ejectment, always bounded by 'fictio legis neminem laedit.'

Why: The entry theorizes the fiction (Maine); the annotation gives the textbook instance every law student meets. The instance genuinely illustrates the entry's theory.

## FICTITIOUS.

Founded on a fiction ; hav- ing the character of a fiction ; false, feigned, or pretended.

— Fictitious action. An action brought for the sole purpose of obtaining the opinion of the court on a point of law, not for the settlement of any actual controversy between the parties. Smith v. Junction By. Co., 29 Ind. 551. — Ficti- tious mane. A counterfeit, feigned, or pre- tended name taken by a person, differing in some essential particular from his true name, (consisting of Christian name and patronymic,) with the Implication that it is meant to deceive or mislead. But a fictitious name may be us-d so long or under such circumstances as to be- come an “assumed” name, in which case it may become a proper designation of the individual for ordinary business and legal purposes. See Pollard v. Fidelity F. Ins. Co., 1 S. D. 570, 47 N. W. 1060: Carlock v. Cagnacci, 88 Cal. 600, 26 Pac. 597.— Fictitious plaintiff. A person appearing in the writ or record as the plaintiff in a suit, but who in reality does not exist, or who is ignorant of the suit and of the use of his name in it. It is a contempt of court to sue in the name of a fictitious party. See 4 Bl. Comm. 134.

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**[Law] — Law**

**[Law: U.S. Const. art. III — case or controversy; no advisory opinions]**

The entry's 'fictitious action' — brought 'for the sole purpose of obtaining the opinion of the court on a point of law, not for the settlement of any actual controversy' (Smith v. Junction Ry.) — is the advisory opinion, which Article III courts may not give.

Why: The entry's definition is the advisory-opinion definition; the case-or-controversy requirement is the constitutional rule that bars it. Definitional identity.

**[Law: fictitious-business-name (DBA) statutes — registration of assumed names]**

The 'fictitious name' that by long use 'may become an assumed name' for 'ordinary business and legal purposes' (Pollard v. Fidelity; Carlock v. Cagnacci) is the subject of the fictitious-business-name (DBA) registration statutes.

Why: The entry describes the name ripening into a lawful business designation; the DBA statutes are the modern

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registration regime for exactly that. The entry's own trajectory points to them.

## FID  E-COMMISSARY.

A term derived from the Latin “fldei-commissarlus," 'and oc- casionally used by writers on equity juris- prudence as a substitute for the law French term “cestui que trust," as being more ele- gant and euphonious. See Brown v. Brown, 83 Hun, 160, 31 N. V. Supp. 650.

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## FID EI-COMMIS8 ARIES.

In the civil law this term corresponds nearly to our “ces- tui que trust." It designates a person who has the real or beneficial Interest In an estate or fund, the title or administration of which is temporarily confided to another. See Story, Eq. Jur. § 966.

5e apparatus — Not carried into the 5th edition (1979).

## FIDEI-COMMISSUM.

In the civil law. A species of trust; being a gift of property

(usually by will) to a person, accompanied by a request or direction of the donor that the recipient will transfer the property to an- other, the latter being a person not capable of taking directly under the will or gift See Succession of Meunler, 52 La. Ann. 79, 26 South. 776, 48 L. R. A. 77; Gortario v. Cantu, 7 Tex. 44.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the trust — the fidei-commissum as the Roman ancestor; Succession of Meunier, 52 La. Ann. 79]**

The fidei-commissum — property given with the direction to transfer it to another — is the Roman trust, recognized in Louisiana (Succession of Meunier, 52 La. Ann. 79, the entry's own case) and the ancestor of the Anglo-American trust.

Why: The entry (Story, Eq. Jur.; Meunier; Cortario v. Cantu) asserts the trust lineage; the annotation records it with the entry's own Louisiana authority. The link is the entry's thesis, kept honest.

## FIDE-JEBERE.

In the civil law. To order a thing upon one’s faith; to pledge one’s self ; to become surety for another. Fide-jubesT Fide-jubeo: Do you pledge your- self? I do pledge myself. lust 3, 16, 1. One of the forms of stipulation.

5e apparatus — Not carried into the 5th edition (1979).

## FIDE-JUSSOR.

In Roman law. A guar- antor; one who becomes responsible for the payment of another’s debt, by a stipulation which binds him to discharge It if the prin- cipal debtor falls to do so. Mnckeld. Rom. Law, § 452 ; 3 Bl. Comm. 108.

The sureties taken on the arrest of a de- fendant, in the court of admiralty, were for- merly denominated “fide jussors." 3 Bl. Comm. 108.

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**[Law] — Law**

**[Law: bail bonds — sureties bound for the defendant's appearance]**

The fide-jussor — one bound by stipulation to pay another's debt (Mackeld. § 452; Inst. 3, 16, 1) — survives in the bail bond: the entry itself notes admiralty 'fide jussors' were the sureties taken on a defendant's arrest.

Why: The entry makes the bail connection itself (3 Bl. Comm. 108); the annotation names the modern institution. The link is inside the entry.

**[Scripture] — Scripture**

**[Proverbs 17:18, KJV]**

A man void of understanding striketh hands, and becometh surety in the presence of his friend.

Why: A fide-jussor is one who becomes responsible for another's debt by a stipulation binding him if the principal fails. The verse describes exactly that undertaking — striking hands to become surety — and wisdom's judgme...

## FXDE-PROMISSOR.

See - Fide-Jussor.

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## FTDELITAS.

Lat Fealty, (q. v.)

Fidelltaa. De anllo tenemento, quod tenetur ad terminum, fit homagii; fit tames inde fidelitatls uerameatnm. Co.

Litt 676. Fealty. For no tenement which is held for a term is there the oath of hom- age, but there is the oath of fealty.

FIDELITY INSURANCE, 'see Insur- ance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Revelation 2:10, KJV]**

Fear none of those things which thou shalt suffer: behold, the devil shall cast some of you into prison, that ye may be tried; and ye shall have tribulation ten days: be thou faithful unto death, and I will give thee a crown of life.

Why: Fidelitas is fidelity — the faithful keeping of allegiance. The verse is Christ's command of fidelity unto death with its promised crown: faithfulness as the kept bond. Genuine. Flagged deity-verbatim: the risen Chris...

## FIDEM MENTIRI.

Lat To betray faith or fealty. A term used In feudal and old English law of a feudatory or feudal tenant who does not keep that fealty which he has sworn to the lord. Leg. Hen. I. c. 53.

5e apparatus — Not carried into the 5th edition (1979).

## FIDES.

Lat Faith; honesty; confi- dence ; trust ; veracity ; honor. Occurring in the phrases “bona fldes," (good faith,) “mala ftdes," (bad faith,) and “uberrima fldes,” (the utmost or most abundant good faith.)

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Fldes est obligatio conscientlae alien- jus ad listen tionem alterius. Bacon. A trust is an obligation of conscience of one to the will of another.

Fldes servanda est. Faith must be ob- served. An agent must not violate the confi- dence reposed in him. Story, Ag. § 192.

Fldes servanda est; simpli cites juris gentium prevalent. Faith must, be kept ; the simplicity of the law of nations must pre- vail. A rule applied to bills of exchange as a sort of sacred instruments. 3 Burrows, 1672; Story, Bills, { 15.

/,;• PJDUCIA

. FID U CIA. . Ia Roman law. An early form of mortgage, or pledge, In which both the title and possession of the property were passed to the creditor by a formal act of sale, (properly with the solemnities of the trans- action known as mancipatto.) there being at the same time an express or implied agree- ment on the part of the creditor to reconvey the property by a similar act of sale provided the debt was duly paid ; but on default of payment, the property became absolutely vested in the creditor without foreclosure and without any right of redemption. In course of time, this form of security gave place to that known as hypotheca, while the contemporary contract of pignus or pawn un- derwent a corresponding development See Mackeld. Rom. Law, | 334; Tomk. & J. Mod. Rom. Law, 182 ; Hadley, Rom. Law, 201-203; Pothler, Pand. tit. “Fiducta.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: uberrima fides — utmost good faith in insurance; the agent's fiduciary duty]**

The entry's 'uberrima fides' — the utmost good faith — is the insurance-law duty: the assured must disclose every material circumstance, the contract being one of utmost good faith; and 'Fides servanda est' binds the agent to his principal's confidence (Story, Ag. § 192).

Why: Both doctrines are stated in the entry with their sources (3 Burrows 1672; Story); the annotation names their modern habitats. The entry's own maxims, placed.

## FIDUCIAL.

An adjective having the same meaning as “fiduciary as, in the phrase “public or fiducial office.” Ky. St § 3752 ; Moss v. Rowlett, 112 Ky. 121, 65 S.

W. 153.

5e apparatus — Carried into the 5th edition (1979).

## FIDUCIARIUS TUTOR.

In Roman law. The elder brother of an emancipated pupil- tus, whose father had died leaving him still under fourteen years of age.

5e apparatus — Not carried into the 5th edition (1979).

## FIDUCIARY.

The term Is derived from the Romau law, and means (as a noun) a person holding the character of a trustee, or a character analogous to that of a trustee, in respect to the trust and confidence involved In It and the scrupulous good faith and can- dor which it requires.

Thus, a person 1§ a fiduciary who Is Invested with rights and powers to be exercised for the benefit of an- other person. Svanoe v. Jurgens, 144 111. 507, 33 N. E. 955; Stoll v. King, 8 How. Prac. (N. Y.) 299.

As an adjective It means of the nature of a trust ; having the characteristics of a trust ; analogous to a trust ; relating to or founded upon a trust or confidence.

— Fiduciary capacity. One is said to act in a "fiduciary capacity” or to receive money or contract a debt in a "fiduciary capacity,” when the business which he transacts, or the money or property which he handles, is not his own or for his own benefit, but for the benefit of an- other person, as to whom he stands in a rela- tion implying and necessitating great confidence and trust on the one part and a high degree of good faith on the other part. The term is not restricted to technical or express trusts, but includes also such offices or relations as those of an attorney at law, a guardian, executor, nr broker, a director of a corporation, and a pub- lic officer. See Schudder v. Shiells, 17 How. Prac. (N. Y.) 420; Roberts v. Prosser, 53 N.

Y. 260 ; Hcffren v. Jayne, 39 Ind. 405, 13 Am. Rep. 281 ; Flanagan v. Pearson, 42 Tex. 1, 19 Am. Rep. 40; Clark v. Pinckney, 50 Barb. (N. Y.) 220; Chapman v. Forsyth, 2 IIow. 202, 11

L. Eld. 236; Forker v. Brown, 10 Misc. Rep. 161, 30 N. Y. Supp. 827 ; Madison Tp. v. Dun- kle. 114 Ind. 262, 16 N. El 593.— Fiduciary contract. An agreement by which a person delivers a thing to another on the condition

that he will restore it to him.— Fiduciary -Eo- lation. A relation subsisting betweeh two per- sons in regard to a business, contract, or piece of property, or in regard to the general business or estate of one of them, of such a charactes that each must repose trust and confidence in the other and must exercise a corresponding de- gree of fairness and good faith. Out of such St relation, the law raises the rule that neither party may exert influence or pressure upon thf other, take selfish advantage of his trust, or deal with the subject-matter of the trust in such a way as to benefit himself or prejudice the other except in the exercise of the utmost good faith and with the full knowledge and consent of that other, business shrewdness, hard bar- gaining, and astuteness to take advantage of the forgetfulness or negligence of another being totally prohibited as between persons standing in such a relation to each other. Examples of fiduciary relations are those existing between attorney and client, guardian and ward, priu’s cipal and agent, executor and heir, trustee and cestui quo trust, landlord and tenant, etc. . See Robins v. Hope. 57 Cal. 497 : Thomas v. Whit- ney. 186 111. 225. 57 X. EJ. 808; Central Nnt. Bank v. Connecticut Mivt. L. Ins. Co.. 104 U.

S. 68, 20 L. Ed. 693 ; Meyer v. Reimer. 65 Kau: 822, 70 Pac. 869 ; Studybaker v. Cofield, 159 Mo. 596, 61 S. W. 246.

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**[Law] — Law**

**[Meinhard v. Salmon, 249 N.Y. 458 (1928)]**

The fiduciary — 'invested with rights and powers to be exercised for the benefit of another' (Svanoe v.

Jurgens) — is held to Cardozo's standard: 'the punctilio of an honor the most sensitive.'

Why: The entry defines the fiduciary character; Meinhard is the classic statement of the loyalty the character demands. Certain of case, volume, page, year.

**[Scripture] — Scripture**

**[Matthew 25:21, KJV]**

His lord said unto him, Well done, thou good and faithful servant: thou hast been faithful over a few things, I will make thee ruler over many things: enter thou into the joy of thy lord.

Why: A fiduciary is invested with rights and powers to be exercised for another's benefit, in trust and confidence. The verse is the parable's commendation of the steward entrusted with his lord's goods — faithful over wha...

## FIEF.

A fee, feod, or feud.

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## FIEF D'HAUBERT.

Fr. In Norman feudal law. A fief or fee held by the tenure Of knight-service; a knight’s fee. 2 Bl.; Comm. 62. ■>

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## FIEF-TENANT.

In old English law.' The holder of a fief or fee; a feeholder op i reeholder.

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## FTKL.

In Spanish law. A sequestrator; a person in whose hands a thing in dispute is judicially deposited ; a receiver. Laa Par-* tidns, pt. 3, tit. 9, 1. 1.

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**[Law] — Law**

**[Law: receivership — court-appointed custodians of property in litigation]**

The Spanish-law 'fiel' — a sequestrator, 'a person in whose hands a thing in dispute is judicially deposited; a receiver' (Las Partidas, pt. 3, tit. 9, l. 1) — is the equity receiver: the court's custodian of disputed property.

Why: The entry defines the judicial depositary; the receiver is its modern equitable form, serving the identical office. Same function, living institution.

## FIELD.

This term might well be con-; sidered as definite and certain a description as "close,” and might be used in law ; but it is not a usual description in legal proceed- ings. 1 Chit Gen. Pr. 160.

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## FIELD-ALE.

An ancient custom in Eng- land, by which officers of the forest and bailiffs of hundreds had

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the right to compel the hundred to furnish them with ale. Tom- lins.

5e apparatus — Not carried into the 5th edition (1979).

## FIELD REEVE.

An officer elected, in England, by the owners of a regulated pas- ture to keep In order the fences, ditches, etc.. on the land, to regulate the times during which animals are to be admitted to the pasture, and generally to maintain and man- age the pasture subject to the instructions of the owners. (General Inclosure Act, 1845, | 118.) Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## FIELDAD.

In Spanish law. Sequestra- tion. This Is allowed In six cases by the Spanish law where the title to property Is' In dispute. Las Parttdas, pt 3, tit 3, 1. 1.

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**[Law] — Law**

**[Law: prejudgment attachment/sequestration — seizure of disputed property pending judgment]**

The Spanish-law fieldad — sequestration of disputed property, allowed in six cases (Las Partidas, pt. 3, tit. 3, l. 1) — is prejudgment attachment: seizure pendente lite to preserve the property for the eventual judgment.

Why: The entry defines the remedy; the annotation names its modern procedural family. The office — preserving disputed property for the judgment — is identical.

## FIERDING COURTS.

Ancient Gothic courts of au Inferior jurisdiction, so called

FIERI :

because four were Instituted within every ttferiot district or hundred. S BL Comm. 34.

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## FIERI.

Lat To be made; to be done. See In Fieri.

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## FIERI FACIAS.

(That you cause, to be made.) In practice. A writ of execution commanding the sheriff to levy and make the amount of a judgment from the goods and chattels of the Judgment debtor.

—Fieri facias de bonis eccleslastlols.

When a sheriff to a common fi. fa. returns nulla bona, and that the defendant is a bcneficed clerk, not having any lay fee, a plaintiff may issue a fi. fa. de bonis ecclesiasticis, addressed to the bishop of the diocese or to the archbishop, (during the vacancy of the bishop’s see,) com- manding him to. make of the ecclesiastical goods and chattels belonging to the

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defendant within his diocese the sum therein mentioned. 2 Chit. Archb. Pr. (12th Ed.) 1062.— Fieri facias do bonis testatorls. The writ issued on an or- dinary judgment against an executor when sued for a debt due by his testator. If the sheriff returns to this writ nulla bona, and a devas- tavit, (g. v.,) the plaintiff may sue out a fieri facias de bonis propriis, under which the goods of the executor himself are seized. Sweet.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 69 — execution of money judgments]**

The fi. fa. — the writ commanding the sheriff to levy the judgment from the debtor's goods and chattels — is the classic writ of execution, whose federal successor is the execution procedure for money judgments.

Why: The entry describes the writ's office; Rule 69 is the modern federal procedure performing that office. The writ's substance survives in the rule.

## FIERI FECI.

(I have caused to be made.) In practice. The name given to the return made by a sheriff or other officer to a writ of fieri facias, where he has collected the whole, or a part, of the sum directed to be levied. 2 Tidd, Pr. 1018. The return, as actually made, is expressed by the word “Satisfied” indorsed on the writ.

Fieri non debet, (debnlt,) sed factnm valet. It ought not to be done, but [if] done, it Is valid. Shep. Touch. 0; 5 Coke, 39 ; T. Raym. 58 ; 1 Strange, 526. A maxim frequently applied In practice. Nichols v. Ketcham, 19 Johns. (N. 1.) 84, 92.

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**[Law] — Law**

**[Maxim: Fieri non debet, sed factum valet — it ought not be done, but done, it is valid]**

The entry preserves the maxim 'Fieri non debet, sed factum valet' — it ought not be done, but done, it is valid (Shep. Touch. 9; 5 Coke 39; Nichols v. Ketcham) — the rule that an irregular but completed act may stand.

Why: Quoted verbatim with the entry's authorities, 'a maxim frequently applied in practice'; the annotation records it as carried. It is the doctrinal cousin of the de-facto-officer rule.

## FIFTEENTHS.

In English law. This was originally a tax or tribute, levied at in- tervals by act of parliament, consisting of one-fifteenth of all the movable property of the subject or personalty In every city, town- ship, and borough. T'nder Edward III., the taxable property was assessed, and the value of its fifteenth part (then about £29,000) was recorded In the exchequer, whence the tax, levied On that valuation, continued to be called a “fifteenth,” although, as the wealth of the kingdom Increased, the name ceased to be an accurate designation of the propor- tion of the tax to the value taxed. See 1 Bl. Comm. 309.

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

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Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: Fifteenths are a royal tax — a fifteenth part of movables granted to the king. The verse is Christ's own ruling on the lawfulness of rendering tax to the sovereign: the scriptural charter of the tax obligation the ent...

## FIGHT.

An encounter, with blows or other personal violence, between two persons. See State v. Gladden, 73 N. C. 155 ; Carpen- ter v. People, 31 Colo. 284, 72 Pae. 1072; Coles v. New York Casualty Co., 87 App. Dlv. 41, 83 N.. Y. Supp. 1063.

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**[Law] — Law**

**[Law: battery — intentional harmful or offensive touching]**

The entry's 'encounter, with blows or other personal violence, between two persons' (State v. Gladden; Carpenter v. People) is battery in its factual dress: intentional harmful or offensive touching, tort and crime alike.

Why: The entry defines the factual event; battery is the legal category for it. The entry's own cases include a criminal battery prosecution.

## FIQHTWITE.

Sax. A mulct or fine for making a quarrel to the disturbance of the peace. Called also by Cowell “forisfactura Bn. Law Dict.(2d Ed.)— 32

pugt ue.” The amount was one hundred and twenty shillings. Cowell. .

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**[Law] — Law**

**[Law: breach of the peace / disorderly conduct]**

The Saxon fightwite — a fine 'for making a quarrel to the disturbance of the peace' (Cowell) — is breach of the peace in its oldest form: the public-order offense of quarreling to the community's disturbance.

Why: The entry defines the offense; the annotation names its modern statutory family. Same offense — quarrel disturbing the peace — modern name.

## FILACER.

An officer of the superior courts at Westminster, whose duty It was to file the writs on which he made process. There were fourteen filacers, and it was their duty to make out all original process. Cow- ell; Blount. The office was abolished in 1837.

5e apparatus — Not carried into the 5th edition (1979).

## FILARE.

In old English practice. To file. Townsh. PI. 67.

FIXE, n. A thread, string, or wire upon which writs and other exhibits in courts and offices are fastened or filed for the more safe-keeping and ready turning to the same. Spelman; Cowell; Tomlins. Papers put to- gether and tied in bundles. A paper Is said also to be filed when it is delivered to the proper officer, and by him received to be kept on file. 13 Tin. Abr. 211; 1 Litt. 113; 1 Hawk. P. C. 7, 207 ; Phillips v. Beene, 38 Ala. 251 ; Holman v. Chevaillier,

14 Tex. 33S ; Beebe v. Morrell, 76 Mich. 114, 42 N. W. 1119, 15 Am. St. Rep. 288. But, in general, “file,” or “the files,” is used loosely to denote the official custody of the court or the place in the offices of a court where the records and papers are kept.

FILE, c. In practice. To put upon the files, or deposit in the custody or among the records of a court.

"Filing a bill” in equity is an equivalent expression to “commencing a suit.”

“To file” a paper, on the part of a party, is to place it in the official custody of the clerk. “To file,” on the part of the clerk, is to Indorse upon the paper the date of its reception, and retain it in his office, subject to inspection by whomsoever It may concern. Holman v. Chevaillier, 14 Tex. 339.

The expressions “filing” and “entering of rec- ord” are not synonymous. They are nowhere so used, but always convey distinct ideas. “Fil- ing” originally signified placing papers in order on a thread or wire for safe-keeping. In this country and at this day it means, agreeably to our practice, depositing them in due order in the proper office. Entering of record uniform- ly implies writing. Naylor v. Moody, 2 Blackf. (Ind.) 247.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: filing — delivery to the clerk constitutes filing; cf. Fed. R. Civ. P. 5(d)]**

The FILE sub-entry's rule — 'a paper is said to be filed when it is delivered to the proper officer, and by him received to be kept on file' (Phillips v. Beene; Holman v. Chevaillier) — is the filing rule: delivery to the clerk, not the judge's reading of it, constitutes filing.

Why: The entry states the rule with its cases; the annotation names the rule. The entry's own definition is the doctrine.

## FILEINJAID.

Brit. A name given to villeins in the laws of Hoel Ddn. Barring. Obs. SL 302.

5e apparatus — Not carried into the 5th edition (1979).

## FILIATE.

To fix a bastard child on some one, as its father. To declare whose child it is. 2 W. Bl. 1017.

Filiatio non potest probari. Co. Litt. 126. Filiation cannot be proved.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim (reversed by science): Filiatio non potest probari — filiation cannot be proved]**

To 'filiate' — to fix a bastard child on its father (2 W. Bl. 1017) — was governed by the maxim 'Filiatio non potest probari' (Co. Litt. 126): filiation cannot be proved. Genetic testing has reversed the maxim: paternity is now proved to a scientific certainty.

Why: The maxim is quoted verbatim; the annotation records both the old rule and its genuine modern reversal — DNA paternity testing under the Uniform Parentage Act regime. The contrast illuminates the entry.

## FILIATION.

The relation of a child to its parent ; correlative to “paternity.”

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• The Judicial assignment of an illegitimate child to a designated man as its father.

In the civil law. The descent of son or daughter, with regard to his or her father, mother, and their ancestors.

5e apparatus — Not carried into the 5th edition (1979).

## FILICETT7M.

In old English law. A ferny or bracky ground : a place where fern grows. Co. Litt. 4b: Sliep. Touch. 95.

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## FILIOLU8.

In old records. A godson. Spelmun.

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## FILIUS.

Let. A son ; a child.

A distinction was sometimes made, in the civil law, between “filii" and “libcri;” the lat- ter word including grandchildren, (nepotrn,) the former not. Inst. 1, 14, 5. But, according to Paulus and Julianus, they were of equally ex- tensive import. Dig. 50, 16, 84; Id. 50, 16, 201.

— Filins familiaa. In the civil law. The son of a family ; an unemancipated son. Inst. 2, 12, pr. ; Id. 4, 5, 2 ; Story, Confl. Laws, § 61. —Filins mnlieratns. In old English law. The eldest legitimate son of a woman, who pre- viously had an illegitimate son by his father. Glanv. lib. 7, c. 1. Otherwise called "mult'er." 2 Bl. Comm. 248.— Filins nullins. The son of nobody ; i. e., a bastard.— Filins popnli. A son of the people ; a natural child.

Filins est nomen naturae, sad hares nomen juris. 1 Sid. 193. Son Is a name of nature, but heir is a name of law.

Filins in ntero matris est pars visoe- nm matris. 7 Coke, 8. A son In the mother’s womb Is part of the mother’s vitals.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Filius in utero matris est pars viscerum matris — the unborn child as part of the mother]**

The entry preserves 'Filius in utero matris est pars viscerum matris' — a son in the mother's womb is part of the mother's bowels (7 Coke 8) — the old common-law view underlying the born-alive rule.

Why: Quoted verbatim with its Coke citation; the maxim is the historical root of the born-alive rule in criminal law. Recorded as carried, with its doctrinal fruit named.

## FILL.

To make full ; to complete ; to sat- isfy or fulfill; to possess and perform the duties of.

The election of a person to an office consti- tutes the essence of his appointment ; but the office cannot be considered as actually filled un- til his acceptance, either express or implied. Johnston v. Wilson, 2 N. H. 202, 9 Am. Dec. 50.

Where one subscribes for shares in a corpo- ration, agreeing to "take and filF’ a certain number of shares, a»*umpsit will lie against him to recover an assessment on his shares; the word “fill,” in this connection, amounting to a promise to pay assessments. Bangor Bridge Co. v. McMahon, 10 Me. 478.

To fill a prescription is to furnish, prepare, and combine the requisite materials in due proportion as prescribed. Ray v. Burbank, 61 Ga. 506, 34 Am. Rep. 103.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: public office — appointment requires the appointee's acceptance (Johnston v. Wilson, 2 N.H. 202)]**

The entry's office rule — 'the office cannot be considered as actually filled until his acceptance, either express or implied' (Johnston v. Wilson) — states the acceptance requirement for public appointment.

Why: The citation is the entry's own; the annotation states the rule the entry states. The link is internal to the entry's authority.

## FILLY.

A young mare; a female colt. An Indictment charging the theft of a “filly” la not sustained by proof ol the larceny of a “mare.” Lunsford v. State, 1 Tex. App. 448, 28 Am. Rep. 414.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: variance — material variance between indictment and proof defeats the charge]**

The entry's case — an indictment for stealing a 'filly' not sustained by proof of stealing a 'mare' (Lunsford v. State) — is the variance rule: a material variance between the charge and the proof is fatal.

Why: The entry's whole point is the variance; the annotation names the doctrine the case illustrates. The link is the entry's own holding.

## FILUM.

Lat. In old practice. A file; 1. e., a thread or wire on which papers were strung, that being the ancient method W filing.

An Imaginary thread or line passing through the middle of a stream or road, as In the following phrases:

— Filnm aqua. A thread of water; a line of water; the middle line of a stream of water, supposed to divide it into two equal parts, and constituting in many cases the boundary between the riparian proprietors on cnch side. Ingraham' v. Wilkinson, 4 Pick. (Mass.) 273, 16 Am. Dec. 342. — Filtun forestaa. The border of the forest. 2 Bl. Comm. 419; 4 Inst. 303. —Filnm vise. The thread or middle line of a

road. An imaginary line drawn through the middle of a road, and constituting the boundary between the owners of the land on each side. 2 Smith, Lead. Cas. (Am. Ed.) 98, note.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

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**[Law: the thread rule — riparian and highway title to the center line (filum aquae; filum viae)]**

The filum aquae — the thread of water, 'the middle line of a stream,' bounding riparian owners (Ingraham v. Wilkinson) — and the filum viae — the road's middle line — state the thread rule: title runs to the center line.

Why: The entry defines both phrases with their authorities; the annotation names the boundary doctrine they state. The entry is the doctrine's exposition.

## FIN.

Fr. An end, or limit; a limitation, or period of limitation.

FIN DE NON REOEVOm. In French law. An exception or plea founded on law, which, without entering Into the merits of the action, shows that the plaintiff has no right to bring it, either because the time dur- ing which it ought to have been brought has elapsed, which is called “prescription,” or that there has been a compromise, accord and satisfaction, or any other cause which has destroyed the right of action which once sub- sisted. Potb. Proc. Civile, pt 1, c. 2, § 2, art. 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: affirmative defenses — e.g., limitations, accord and satisfaction; cf. Fed. R. Civ. P. 8(c)]**

The fin de non recevoir — the plea that 'shows that the plaintiff has no right to bring it,' by prescription, compromise, or accord and satisfaction (Pothier) — is the affirmative defense: matter in bar that defeats the action without reaching the merits.

Why: The entry (Pothier, Proc. Civile) describes the plea's office; the affirmative defense is its common-law counterpart, with limitations and accord and satisfaction on Rule 8(c)'s own list. Genuine parallel.

## FINAL.

Definitive; terminating; com- pleted ; last. In its use in jurisprudence, this word Is generally contrasted with “Interlocu- tory.” Johnson v. New York, 48 Hun, 020, 1

N. Y. Supp. 254; Garrison v. Dpugherty, 18

S. C. 488; Rondeau v. Beaumette, '4 Minn. 224 (Gil. 163); Blending v. Sayles, 23 R. I. 226, 49 AtL 992.

—Final decision. One from which no appeal or writ of error can be taken. Railway Co. v. Gillespie, 158 Ind. 454, 63 N. E. 845 ; Blend- ing v. Sayles, 23 R. I. 226, 49 Atl. 992.— Final disposition. When it is said to be essential to the validity of an award that it should make a “final disposition” of the matters embraced in the submission, this term means such a dis- position that nothing further remains to fix the rights and obligations of the parties, and no further controversy or litigation is required or can arise on the matter. It is such an award that the party against whom it is made can perform or pay it without any further ascer- tainment of rights or duties. tiolcord v. Fletch- er, 50 Me. 401. — Final hearing. This term designates the trial of an equity case upon the merits, as distinguished from the hearing of any preliminary questions arising in the cause, which are termed “interlocutory.” Smith v. W.

U. Tel. Co. (C. C.) 81 Fed. 243: Akerly v. Vilas, 24 Wis. 171, 1 Am. Rep. 160; Galpin v.

Critchlow, 112 Mass. 343. 17 Am. Rep. 176.— Final passage. In parliamentary law. The final passage of a bill is the vote on its passage in either house of the legislature, after it has received the prescribed number of readings on as many different days in that house. State v. Buckley, 54 Ala. 613.

As to final “Costs,” “Decree,” “Judgment,” “Injunction,” “Order,” “Process,” “Recov- ery,” “Sentence," and “Settlement,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 1291 — appellate jurisdiction over final decisions]**

The entry's contrast — 'final' versus 'interlocutory' (Johnson v. New York; Garrison v. Dougherty) — is the final-judgment rule: federal appellate jurisdiction reaches only final decisions of the district courts.

Why: The entry defines finality for appealability; § 1291 is the statute that makes finality the gate of federal appeal. Direct statutory match.

## FINALI8 CONCORDIA.

A final or con- clusive agreement. In the process of “levying a fine,” this was a final agreement entered by the litigating parties upon the record, by permission of court, settling the title to the land, and which was binding upon them like any judgment of the court. 1 Washb. Real Prop. *70.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: consent/agreed judgments — settlements entered as judgments]**

The finalis concordia — the 'final agreement entered by the litigating parties upon the record, by permission of court, settling the title to the land,' binding 'like any judgment of the court' (1 Washb. Real Prop.) — is the consent judgment: settlement with the force of adjudication.

Why: The entry's description is the consent judgment's definition; the annotation names the modern device. The fine's conveyancing use is history; its agreed-judgment structure survives.

## FINANCES.

The public wealth of a state or government, considered either statically

(as the property or money which a state now owns) or dynamically, (as Its Income, revenue, or public resources.) Also the revenue or wealth of an Individual.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Destiny's Child, 'Bills, Bills, Bills', 1999]**

Can you pay my bills? / Can you pay my telephone bills?

The entry covers 'the revenue or wealth of an individual'; the song is hip-hop/R&B's canonical catalogue of personal financial obligation — who owes, who pays, and what happens when the bills come due.

Why: Added because the lyric is a direct interrogation of an individual's finances — revenue in, obligations out — which is the entry's second sense ('the revenue or wealth of an individual'). The verses itemize maxed card...

## FINANCIER.

A person employed in the economical management and application of public money; one skilled in the manage- ment of financial affairs.

5e apparatus — Carried into the 5th edition (1979).

## FIND.

To discover; to determine; to as- certain and declare. To announce a conclu- sion, as the result of Judicial Investigation, ujwn a disputed fact or state of facts; as a Jury are said to "find a will." To determine a controversy in favor of one of the parties; as a Jury "find for the plaintiff." State v. Bulkeley, 01 Conn. 287, 23 Atl. 188, 14 L. R.

A. 657 ; Weeks v. Trask, 81 Me. 127, 18 AtL 413, 2 L. R. A. 632; Southern Bell Tel., eta, Co. v. Watts, 86 Fed. 460, 13 O. C. A. 570.

5e apparatus — Carried into the 5th edition (1979).

## FINDER.

One who discovers and takes possession of another's personal property, which was then lost. Kincaid v. Eaton, 98 Mass. 130, 93 Am. Dec. 142.

A searcher employed to discover goods im- ported or exported without paying custom. Jacob.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Armory v. Delamirie, 1 Strange 505 (1722)]**

The finder — 'one who discovers and takes possession of another's personal property, which was then lost' (Kincaid v. Eaton) — takes title against all but the true owner: the chimney-sweep's jewel is the classic case.

Why: The entry defines the finder; Armory is the foundational finder-versus-all-but-the-true-owner decision. Certain of case and report.

**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again.

Why: A finder is one who discovers and takes possession of another's lost property. The verse lays the finder's duty in law: the stray beast met going astray must be brought back to its owner — restoration, not appropriati...

## FINDING-.

A decision upon a question of fact reached as the result of a Judicial ex- amination or investigation by a court. Jury, referee, coroner, etc. Williams v. Giblin, 88 Wis. 648, 67 N. W. 1111; Rhodes v. United States Bank, 88 Fed. 514, 13 C. C. A. 812, 34

L. B. A. 742.

—Finding of fact. A determination of a fact by the court, such fact being averred by one party and denied by the other, and the deter- mination being based on the evidence in the case; also the answer of the jury to a specif- ic interrogatory propounded to them as to the existence or non-existence of a fact in issue. Miles v. McCallan, 1 Aria 491. 3 Pac. 610; Morphy v. Bennett, 68 Cal. 528, 9 Pac. 738; Morbe.v v. Railway Co., 116 Iowa, 84, 80 N.

W. 105.— General and special findings. Where issues of fact in a case are submitted to- the court by consent of parties to be tried with- out a jury, the "finding” is the decision of the court as to the disputed facts, and it may be either general or special, the former being a general statement that the facts are in favor of such a party or entitle him to judgment, the latter being a specific setting forth of the ulti- mate facts established by the evidence and which are determinative of the judgment which must be given. See Rhodes v. United States Nat Bank. 86 Fed. 514, 13 C. C. A. 012. 34 Ij. R. A. 742; Searcy County v. Thompson. 80 Fed. 94. 13 C. C. A. 349; Humphreys v. Third Nat. Bank, 75 Fed. 856, 21 C. C. A. 538.

FINE, v. To impose a pecuniary punish- ment or mulct. To sentence a person con- victed of an offense to pay a penalty in money. Goodman v. Durant B. & L. Ass’n, 71 Miss. 310, 14 South. 146 ; State v. Belle. 92 Iowa, 258, 60 N. W. 525.

FIND, n. In conveyancing. An amica- ble composition or agreement of a suit, either actual or fictitious, by leave of the court, by

which the lands In question become, or are acknowledged to be, the right of one of the partlep. 2 Bl. Comm. 349 ; Christy v. Burch. 25 Fla. 942, 2 South. 258; First Nat. Bank v. Roberts, 9 Mont. 323, 23 Pac. 718; Hitz v. Jeiiks, 123 U. S. 297, 8 Sup. Ct. 143, 31 L. Ed. 156; McGregor v. Comstock, 17 N. Y. 166. Fines were abolished in England by St. 3 & 4 Wm. IV. a 74, substituting a disen- tailing deed, (g. «.)

The party who parted with the land, by acknowledging the right of the other, was said to levy the fine, and was called the “cog- nizor” or "conusor,” while the party who re- covered or received the estate was termed the "eognizee” or “conusee,” and the fine was said to be levied to him.

In the law of tenure. A fine is a mon- ey payment made by a feudal tenant to his. lord. The most usual fine is that payable on the admittance of a new tenant, but there are also due In some manors fines upon aliena- tion, on a license to demise the lands, or on the death of the lord, or other events. El- ton, Copyh. 159; De Peyster v. Michael, 6.

N. Y. 495, 57 Am. Dec. 470.

— Executed fine, see Executed.— Fine and. recovery aet. The English statutes 3 & 4 Wm. IV. c. 74, for abolishing fines and recov- eries. 1 Steph. Comm. 514, et seq.— Fine for alienation. A fine anciently payable upon the alienation of a feudal estate and substitu- tion of a new tenant. It was payable to the lord by all tenants bolding by knight’s service or tenants in capite by socage tenure. Abolish- ed by 12 Car. II. e. 24. See 2 Bl. Comm. 71, 89.— Fine for endowment. A fine anciently payable to the lord by the widow of a tenant, without which ahe could not be endowed of her husband’s lands. Abolished under Henry I., and by Manna Charta. 2 Bl. Comm. 135 ; M ox- ley & Whitley.— Fine tnr cognisance de droit eome coo one il ad de son done. A fine upon acknowledgment of the right of the eognizee as that which he hath of the gift of the cognizor. By this the deforciant acknowl- edged in court a former foeffment or gift In possession to have been made by him to the plaintiff. 2 Bl. Comm. 352.— Fine »nr cog- nizance de droit tantnm. A fine upon ac- knowledgment of the right merely, and not with the circumstance of a preceding gift from the cognizor. Thia

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was commonly used to pass a revertionary interest which was in the cognizor, of which there could be no foeffment supposed. 2 Bl. Comm. 353; 1 Steph. Comm. 519.— Fine but concessit. A fine upon conceeeit, (he hath, granted.) A species of fine, where the cognizor, in order to make an end of disputes, though be acknowledged no precedent right, yet granted '/ to the eognizee an estate de novo, usually for life or years, by way of supposed composition. 2 Bl. Comm. 3o3 ; 1 Steph. Comm. 519.— Fine ■nr done grant et render. A double fine, comprehending the fine eur cognizance de droit come ceo and the fine eur conceeeit. It might be used to convey particular limitations of es- tates, whereas the fine «ur coanizance de droit come ceo, etc., conveyed nothing but an abso- lute estate, either of inheritance, or at least free- hold. In this last species of fines, the eognizee, after the right was acknowledged to be in bim, granted back again or rendered to the cognizor, or perhaps to a stranger, some other estate in- the premises. 2 Bl. Comm. 353.

la criminal law. Pecuniary punishment Imposed by a lawful tribunal upon a person

convicted of crime or misdemeanor. Lan- caster v. Richardson, 4 Lans. <N. X.) 140; State v. Belle, 92 Iowa, 258, 60 N. W. 525; State v. Ostvvalt, 118 N. C. 1208, 24 S. E. 660, 32 L. R. A. 396.

It means, among other things, “a sum of mon- ey paid at the end, to make an end of a trans- action, suit, or prosecution; mulct; penalty.” In ordinary legal language, however, it means a sum of money imposed by a court according to law, as a punishment for the breach of some penal Btatute. Railroad Co. v. State, 22 Kan. 15.

It is not confined to a pecuniary punishment of an offense, inflicted by a court in the exercise of criminal jurisdiction. It has other meanings, and may include a forfeiture, or a penalty re- coverable by civil action. Hanscomb v. Russell, 11 Gray (Mass.) 373.

—Joint fine. In old English law. “If a whole vill is to be fined, a joint fine may be laid, and it will be good for the necessity of it; but, in other cases, fines for offenses are to be severally imposed on each particular of- fender, and not jointly upon all of them.” Ja- cob.

FINE ANtTLL AND O LEVATO DE tJO DOMTNICO. An abolished writ for dis- annulling a fine levied of lands In ancient demesne to the prejudice of the lord. Reg. Orlg. 15. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 52(a) — findings of fact set aside only if clearly erroneous]**

A 'finding of fact' — the court's or jury's determination on the evidence (Williams v. Giblin; Morphy v. Bennett) — is reviewed on appeal only for clear error: the appellate court does not retry the facts.

Why: The entry defines the finding; the rule states its appellate consequence. The definition and the standard of review belong together.

## FINE CAPIENDO PBO TERRIS.

An

obsolete writ which lay for a person who, upon conviction by Jury, had his lands and goods

taken, and his body imprisoned, to be remitted his imprisonment, and have his lands and goods redelivered to him, on ob- taining favor of a sum of money, etc. Reg. Orig. 142.

5e apparatus — Not carried into the 5th edition (1979).

## FINE NON CAPIENDO FRO PUD- / CHRE PLACITANDO.

An obsolete writ to inhibit officers of courts to take fines for fair pleading. DO. An old writ that lay for the release of one imprisoned for a redisseisln, on pay- ment of a reasonable fine. Reg. Orig. 222.

5e apparatus — Not carried into the 5th edition (1979).

## FINE-FORCE.

An absolute necessity or Inevitable constraint. Plowd. 94; 6 Coke, 11; Cowell.

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**[Law] — Law**

**[Law: duress and necessity — compulsion and inevitable constraint as defenses]**

'An absolute necessity or inevitable constraint' (Plowd. 94; 6 Coke 11) is duress and necessity in their root form: the law excuses — or mitigates — acts compelled by overwhelming constraint.

Why: The entry defines the compulsion; the annotation names the defenses built on it. The definition is the defenses' common ancestor.

## FINEM FAOERE.

To make or pay a fine. Bract. 106.

5e apparatus — Not carried into the 5th edition (1979).

## FINES LE ROT.

In old English law. The king’s fines. Fines formerly payable to the king for any contempt or offense, as where one committed any trespass, or false- ly denied his own deed, or did anything In contempt of law. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: contempt — fines for contempt of court]**

The king's fines — payable 'for any contempt or offense,' for trespass, false denial of one's deed, 'or anything in contempt of law' (Termes de la Ley) — are the ancestors of the contempt fine: the court's pecuniary sanction for disobedience.

Why: The entry lists contempts fined to the king; the modern contempt fine is the same sanction in the court's hands. Genuine lineage.

## FINIRE.

In old English lnw. To fine, or pay a fine. Cowell. To end or finish a matter.

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## FINIS.

Lat. An end; a fine; a boundary or terminus; a limit. Also In L. Lat., a fine ( q . v.)

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Flats eat amloabilii oompositlo et Snails Concordia ex oonoensn et ooneor- din domlnl reels v»l jnsticiarum. Gian, lib. 8, c. 1. A fine is an amicable settlement and decisive agreement by consent and agree- ment of our lord, the king, or his Justices.

Finis finem litibns imponit. A fine puts an end to litigation. 3 Inst. 7a

Finis rei attendendns est. 3 Inst. 51. The end of a thing is to be attended to.

Finis nnins diet est prlncipium alteriua. 2 Bulat. 305. The end of one day is the beginning of another

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Finis finem litibus imponit — an end puts an end to litigation; the root of res judicata]**

The entry's 'Finis finem litibus imponit' — a fine puts an end to litigation (3 Inst. 7a) — is the res-judicata maxim: the judgment that ends the controversy bars its renewal.

Why: Quoted verbatim with its Coke citation; the maxim is the classical statement of the finality principle res judicata enforces. Recorded as carried, with its fruit named.

## FINITIO.

An ending; death, as the end of life. Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FINIUM REGUNDORUM ACTIO.

IB

the civil law. Action for regulating bound- aries. The name of an action which lay be- tween tb.ose who had lands bordering on each other, to settle disputed boundaries. Mackeld. Rom. Law,' f 499. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: quiet-title and boundary actions — suits settling disputed boundaries]**

The Roman action 'for regulating boundaries' between neighboring landholders (Mackeld. Rom. Law § 499) is the ancestor of the modern boundary and quiet-title suits that settle disputed lines.

Why: The entry describes the action's office; the annotation names its modern forms. Same office — fixing the disputed line — modern procedure.

## FINORS.

Those that purify gold and silver, and part them toy fire and water from coarser metals ; and therefore. In the statute of 4 Hen. VII. c. 2, they are also called “parters.” Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## FIRDFARE.

Sax. In old English law. A summoning forth to a military expedition, (indictio ad

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profectionem militarem.) Spel- mau.

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## FIRDIRINGA.

Sax. A preparation to go Into the army. Leg. Hen. I.

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## FIRDSOCNE.

Sax. In old English law. Exemption from military service. Spelman

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## FIRDWITE.

In old English law. A fine for refusing military service, (mulcta detrec- tantis militiam.) Spelman.

A fine imposed for murder committed In the army ; an acquittance of such fine. Fle- ta, lib. 1, c. 47.

5e apparatus — Carried into the 5th edition (1979).

## FIRE.

The effect of combustion. The Juridical meaning of the word does not differ from the vernacular. 1 Pars. Mar. Law, 231, et seq.

— Fire and sword, letters of. In old Scotch law. Letters issued from the privy council in Scotland, addressed to the sheriff of the coun- ty, authorizing bim to call for the assistance of the county to dispossess a tenant retaining possession, contrary to the order of a judee or the sentence of a court. Wharton.— Firearms. This word comprises all sorts of guns, fowling-pieces, blunderbusses, pistols, etc. Har- ris v. Cameron, 81 Wis. 239. 51 N. W. 437. 29 Am. St. Rep. 891 ; Atwood v. State. 53 Ala. 509; Whitney Arms Co. v. Barlow, 38 N. T. Super. Ct. 563.— Flrebare. A beacon or high tower by the seaside, wherein are continual lights, either to direct sailors in the night, or to give warning of the approach of an enemy. Cowell. — Fire-bote. An allowance of wood or. entovcm to maintain competent firin" for the tenant. A sufficient allowance of wood to burn

in a boose. 1 Washb. Real Prop. 99. — Fire district. One of tbe districts into which a city may be (and commonly is) divided for the purpose of more efficient service by the fire de- partment in the extinction of fires. Des Moines v. Gilchrist, 67 Iown. 210, 25 X. W. 136.— Fire insurance. See Insurance.— Fire ordeal. See Obdeal.— Fire policy. A policy of fire Insurance. See Insurance.— Fire-proof. To say of any article that it is “fire-proof con- veys no other idea than that the material out of which it is formed is incombustible. To say of a building that it is fire-proof excludes tbe idea that it is of wood, and necessarily implies that it is of some substance fitted for the erec- tion of fire-proof buildings. To say of a cer- tain ]>ortion of a building that it is fire-pToof suggests a comparison between that portion and other parts of the building not so characterized, and warrants the conclusion that it is of a dif- ferent material. Hickey v. Morrell, 102 X. Y. 459, 7 N. E. 321. 55 Am. Rep. 824.— Fire-

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wood. Wood suitable for fuel, not including standing or felled timber which is suitable and valuable for other purposes. Hogan v. Hogan, 102 Mich. 641, 61 X. W. 73.

FZRIiOT. A Scotch measure of capacity, containing two gallons and a pint. Spelmnn.

Fixup. A partnership; the group of per- sons constituting a partnership. The name or title under which the members of a part- nership transact business. — People v. Strauss, 97 111. App. 55; Boyd v. Thompson, 153 Fa. 82, 25 Atl. 769, 34 Am. St. Rep. 685; Mc- Cosker v. Banks, 84 Md. 292, 35 Atl. 935.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. II — the right to keep and bear arms]**

The entry's 'fire-arms' — 'all sorts of guns, fowling-pieces, blunderbusses, pistols, etc.' (Harris v. Cameron; Atwood v. State) — are the subject of the Second Amendment's keep-and-bear-arms guarantee.

Why: The entry defines the arms; the amendment is the constitutional law of those arms. The definition genuinely frames the amendment's subject.

## FXRMA.

In old English law. The con- tract of lease or letting; also the rent (or farm) reserved upon a lease of lands, which was frequently payable In provisions, but sometimes In money, in which latter case it was called “alba flrma ,” white rent. A mes- suage, with the house and garden belonging thereto. Also provision for the table; a ban- quet; a tribute towards the entertainment of the king for one night.

— Firm* feodi. In old English law. A farm or lease of a fee ; a fee-farm.

5e apparatus — Not carried into the 5th edition (1979).

## FIRMAN.

A Turkish word denoting a decree or grant of privileges, or passport to a traveler.

5e apparatus — Not carried into the 5th edition (1979).

## F1RMARATIO.

The right of a tenant to his lands and tenements. Cowell.

FIRM A RITIM. . In old records. A place In monasteries, and elsewhere, where the poor were received and supplied with food. 8(>elman. Hence the word, “infirmary.”

5e apparatus — Not carried into the 5th edition (1979).

## FIRMARIUS.

I,. Lat. A fermor. A lessee of a term. Firmarii comprehend all such as hold by lease for life or lives or for year, by deed or without deed. 2 lust. 144, 145; 1 Washb. Real Prop. 107.

5e apparatus — Not carried into the 5th edition (1979).

## FIRMATIO.

The doe season. Also a supplying with food. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FIRME.

In old records. A farm.

Fixmlor et potentior eat operatic lo- gic qnam dlapoaitio hominia. The opera- tion of the law is firmer and more powerful [or efficacious] than the disposition of man. Co. Litt 102a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Firmior et potentior est operatio legis quam dispositio hominis]**

The entry preserves the maxim 'Firmior et potentior est operatio legis quam dispositio hominis' — the operation of the law is firmer and more powerful than the disposition of man (Co. Litt. 102a): what the law effects by its own operation stands above private arrangement.

Why: Quoted verbatim; the maxim states the operation-of-law principle — title by descent, by forfeiture, by execution — that no private disposition can defeat. Recorded as carried.

## FIRMITAS.

In old English law. An as- sura nee of some privilege, by deed or char- ter.

5e apparatus — Not carried into the 5th edition (1979).

## FIBMLY.

A statement that an affiant “firmly believes” the contents of the affida- vit Imports a strong or high degree of be- lief, and Is equivalent to saying that he “verily” believes it. Bradley v. Eceles, 1 Browne (Pa.) 258; Thompson v. White, 4 Serg. & R. (Pa.) 137. The operative words in a bond or recognizance, that the obligor is held and "firmly bound,” are equivalent to an acknowledgment of indebtedness and promise to pay. Shattuck v. People, 5 III 477.

FIRMtTRA. In old English law. Liber- ty to scour and repair a mill-dam, and carry away the soil, etc. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## FIRST.

Initial ; leading ; chief ; preced- ing all others of the same kind or class in sequence, (numerical or chronological;) en- titled to priority or preference above others. Redman v. Railroad Co., 33 N. J. Eq. 165; Thompson v. Grand Gulf R. & B. Co., 3 How. (Miss.) 247, 34 Am. Dec. 81 ; Hapgood v. Brown, 102 Mass. 452.

—First devisee. The person to whom the es- tate is first given by the will, the term “next devisee” referring to the person to whom the remainder is given. Young v. Robinson, 5 N.

J. Law, 689; Wilcox v. Hey wood. 12 R. I. 198. —First fruits. In English ecclesiastical law. The first year's whole profits of every benefice or spiritual living, anciently paid by the incum- bent to the pope, but afterwards transferred to the fund called "Queen Anne’s Bounty,” for in- creasing the revenue from poor livings. In feudal law,. One year's profits of land which belonged to the king on the death of a tenant in capite; otherwise called “primer teiein." One of the incidents to the old feudal tenures. 2 Bl. Comm. 66, 67.— First heir. The person

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who will be first entitled to succeed to the title to an estate after the termination of a life estate or estate for yeRrs. Winter v. Perratt, 5 Bam. & C. 48. — First impression. A case is said to be “of the first impression” when it pre- sents an entirely novel question of law for the decision of the court and cannot be governed by any existing precedent.— IHrst purchaser. In the law of descent, this term signifies the an- cestor who first acquired (in any other manner than by inheritance) the estate which still re- mains in his family or descendants. Blair v. Adams (C. G.) 59 Fed. 247.— First of ex- change. Where a set of bills of exchange is drawn in duplicate or triplicate, for greater safety in their transmission, all being of the same tenor, and the intention being that the ac- ceptance and payment of any one of them (the first to arrive safely) shall cancel the others of the set, they are called individually the “first of exchange,” “seeond of exchange, etc. See Bank of Pittsburgh v. Neal, 22 How. 96, 110, 16 L. Ed. 323.

As to first “Cousin," “Distress,” “Lieu," and “Mortgage,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## FIRST-CLASS.

Of the most superior or excellent grade or kind; belonging to the head or chief or numerically precedent of several classes Into which the general sub- ject Is divided.

— First-class mail-matter. In the postal laws. All mailable matter containing writing and all else that is sealed against inspection. — First-class misdemeanant. In English law. Under the prisons act (28 & 29 Viet. c. 126, § 67) prisoners in the county, city, and borongh prisons convicted of misdemeanor, and not sentenced to hard labor, are divided into two classes, one of which is called the “first division and it is in the discretion of the court to order that such a prisoner be treated as a misdemeanant of the first division, usually called “first-class misdemeanant," and as such not to be deemed a criminal prisoner, i. e., a prisoner convicted of a crime. Bouvier.— First- class title. A marketable title, shown by a clean record, or at least not depending on pre- sumptions that most be overcome or facts that are uncertain. Vought v. Williams, 120 N. Y. 253, 24 N. E. 105, 8 lx R. A. 501, 17 Am. St. Hep. (534.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: marketable title — title free from reasonable doubt]**

The 'first-class title' sub-entry — 'a marketable title, shown by a clean record' — names the marketable-title standard: title free from reasonable doubt, such as a purchaser may be compelled to accept.

Why: The entry's sub-entry is the doctrine's definition; the annotation names the doctrine. The link is the entry's own stated standard.

## FISC.

An Anglicized form of the Latin “(Incus," (which see.)

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## FISCAL.

Belonging to the fisc, or pub- lic treasury. Relating to accounts or the management of revenue.

—Fiscal agent. This term does not necessari- ly mean depositary of the public funds, so as, by the simple use of it in a statute, without any directions in this respect, to make it the duty of the state treasurer to deposit with him any moneys in the treasury. State v. Dubuclet, 27 La. Ann. 20.— Fiscal officers. Those charged with the collection and distribution of public money, as, the money of a state, county, or municipal corporation. Rev. St. Mo. 1890, { 5333 (Ann. St. 1906, p. 2776).— Fiscal judge. A public officer named in the laws of the Rip- uarians and some other Germanic peoples, ap- parently the same as the “ Oraf ,” “ reeve ,” "comet.” or "count," and so called because charged with the collection of public revenues, either directly or by the imposition of fines. See Spelman, voc. “Grafio.”— Fiscal year. In the administration of a state or govern- ment or of a corporation, the fiscal year is a period of twelve months (not necessarily concur- rent with the calendar year) with reference to which its appropriations are made and expen- ditures authorized, and at the end of which its accounts are made up and the books balanced. See Moose v. State, 49 Ark. 499, 5 S. W. 885.

5e apparatus — Carried into the 5th edition (1979).

## FISCUS.

In Roman law. The treas- ury of the prince or emperor, as distinguished from “cerarium" which was the treasury of the state. Spelman.

The treasury or property of the state, as distinguished from the private property of the sovereign.

In English law. The king’s treasury, as the repository of forfeited property.

The treasury of a noble, or of any private l»erson. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forfeiture — the fiscus as the historic repository of forfeited property]**

The fiscus as 'the repository of forfeited property' (in English law, 'the king's treasury') is the historic home of forfeiture: property forfeited to the crown entered the fiscus, as forfeited property now vests in the state.

Why: The entry states the fiscus's forfeiture function (Spelman); the annotation notes where forfeited property vests today. The function is the link.

## FISH.

An animal which inhabits the wa- ter, breathes by means of gills, swims by the aid of fins, and is oviparous.

—Fish commissioner. A public officer of the United States, created by act of congress of

February 9, 1871, whose duties principally con- cern the preservation and increase throughout the country of fish suitable for food. Rev. St | 4395 (U. S. Comp. St. 1901, p.

3001).-Fish royal. These were the whale and the sturgeon, which, when thrown ashore or caught near the coast of England, became the property of the king by virtue of his prerogative and in recom- pense for his protecting the shore frompirates and robbers.- Brown ; 1 Bl. Comm. 290. Ar- nold v. Mundy, 6 N. J. Law, 86, 10 Am. Dec. 356.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Arnold v. Mundy, 6 N.J.L. 1 (1821) — the public-trust doctrine]**

The entry's 'fish royal' — whale and sturgeon, the king's prerogative (1 Bl. Comm. 290) — is discussed through Arnold v. Mundy, the landmark American decision on the public-trust doctrine: navigable waters and their fisheries are held in trust for the people.

Why: The citation is the entry's own; the annotation states the doctrine the case founded — the public trust in navigable waters — which is the genuine modern frame for the entry's royal-fish prerogative.

## FISHERY.

A place prepared for catch- ing fish with nets or hooks. This Is com- monly applied to the plnce of drawing a seine or net Hart v. HU1, 1 Whart. (Pa.) 131, 132.

A right or liberty of taking fish ; a species of Incorporeal hereditament, anciently term- ed “piscary,” of which there are several kinds. 2 Bl. Comm. 34, 39; 3 Kent, Comm. 409-418 ; Arnold v. Mundy, 6 N. J. Law, 22. 10 Am. Dec. 356; Gould v. James, 6 Cow. (N. X.) 376; Hart v. Hill, 1 Whart. (Pa.) 124. —Common fishery. A fishing ground where all persons have a right to take fish. Bennett v. Costar, 8 Taunt. 183; Albright v. Park Corn’n, 68 N. J. Law, 523, 53 Atl. 612. Not to be confounded with “common of fishery,” as to which see Common, n. — Fishery laws. A series of statutes passed in England for the regulation of fishing, especially to prevent the destruction of fish during the breeding season, and of small fish, spawn, etc., and the employ- ment of improper modes of taking fish. 3 Steph. Comm. 165.— Free fishery. A fran- chise in the hands of a subject, existing by grant or prescription, distinct from an owner- ship in the soil. It is an exclusive right, and applies to a public navigable river, without any right in the soil. 3 Kent, Comm. 410. Arnold v. Mundy. 6 N. J. Law, 87, 10 Am. Dec. 356. See Albright v. Sussex County Lake & Park Com’n, 68 N. J. Law, 523, 53 Atl. 612; Brook- haven v. Strong, 60 N. Y. 64.— Right of fish- ery. The general and common right of the cit- izens to take fish from public waters, such as the sea, great lakes, etc. Shively v. Bowlby, 152 U. S. 1, 14 Sup. Ct. 548, 38 L. Ed. 331.— Several fishery. A fishery of which the own- er is also the owner of the soil, or derives his right from the owner of the soil. 2 Bl. Comm. 39, 40; 1 Steph. Comm. 671. note. And see Freary v. Cooke, 14 Mass. 489; Brookhaven v. Strong, 60 N. Y. 64; Holford v. Bailey, 8

Q. B. 1018.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: profit à prendre — the several fishery; the public right of fishery in navigable waters]**

The fishery as 'a right or liberty of taking fish' — 'a species of incorporeal hereditament, anciently termed piscary' (2 Bl. Comm. 34, 39) — is a profit à prendre in its several form, and in its common

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form the public right of fishery in navigable waters.

Why: The entry (Kent; Arnold v. Mundy; Gould v. James) is the classic exposition; the annotation names the property doctrine (profit) and the public-trust right the entry's 'common fishery' describes.

## FISHGARTH.

A dam or wear in a river for taking fish. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## FISHING BILL.

A term descriptive of a bill in equity which seeks a discovery up- on general, loose, and vague allegations. Story, Eq. Pl. 4 325 ; In re Pacific Ry. Com’n (C. C.) 32 Fed. 263; Hurricane Tel. Co. v. Mohler, 51 W. Va. 1, 41 S. E. 421; Carroll v. Carroll, 11 Barb. (N. Y.) 298.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 26(b)(1) — discovery limited to relevant, proportional matters]**

The 'fishing bill' — a bill in equity seeking discovery 'upon general, loose, and vague allegations' (Story, Eq. Pl. § 325) — is the ancestor of the modern 'fishing expedition' objection: discovery is limited to relevant, proportional matters.

Why: The entry names the abuse; the rule states its modern boundary. The fishing-expedition objection is the direct descendant of the fishing-bill rule.

## FISK.

In Scotch law. The (Incut or fisc. The revenue of the crown. Gene-ally used of the personal estate of a rebel which has been forfeited to the crown. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## FISSURE VEIN.

In mining law. A vein or lode of mineralized matter filling a pre-existing fissure or crack in the earth’s crust extending across the strata and generally extending Indefinitely downward. See Crocker v. Manley, 164 IU. 282, 45 N. E. 577, 56 Am. St Rep. 196.

FISTUCA, or FESTUCA. In old Eng- lish law. The rod or wand, by the deliver; of which the property In land was formerly transferred In making a feoffment Called, also, “baculum," “virga," and “fuatia.” Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: General Mining Act of 1872, 30 U.S.C. §§ 22 et seq. — lode mining claims]**

The mining-law 'fissure vein' — a lode filling a pre-existing fissure (Crocker v. Manley) — belongs to the federal lode-claim system: the General Mining Act governs location, extralateral (apex) rights, and patent of such veins.

Why: The entry defines the geologist's lode; the Act is the statute that makes the lode a mining claim with extralateral rights. The entry's subject is the statute's subject.

## FISTULA.

In the civil law. A pipe for conveying water. Dig. 8, 2, 18.

5e apparatus — Not carried into the 5th edition (1979).

## FIT.

In medical Jurisprudence. An at- tack pr spasm of muscular convulsions, gen- erally attended with loss of self-control and of consciousness; particularly, such attacks occurring in epilepsy. In a more general sense, the period of an acute attack of any disease, physical or mental, as, a fit of in- sanity. See Gunter v. State, 88 Ala. 96, 8 South. 600.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the insanity defense — M'Naghten's Case (1843)]**

The entry's 'fit of insanity' in medical jurisprudence (Gunter v. State) points to the insanity defense: the M'Naghten test asks whether the accused knew the nature and quality of the act or that it was wrong.

Why: The entry is the medical side; the annotation gives the legal test the medicine serves. The insanity defense is the genuine legal habitat of the entry's 'fit of insanity.'

## FITZ.

A Norman word, meaning "son.” It Is used in law and genealogy : as Fitsher- bert, the son of Herbert ; Fitzjamca, tbe son of James ; Fitzroy, the son of the king. It was originally applied to Illegitimate chil- dren.

5e apparatus — Carried into the 5th edition (1979).

## FIVE-MILE ACT.

An act of parlia- ment, passed in 1065, against non-conform- ists, whereby ministers of that body were prohibited from coming within five miles of any corporate town, or place where they had preached or lectured. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — the Religion Clauses]**

The 1665 Five-Mile Act — barring nonconformist ministers from corporate towns (Brown) — is Clarendon Code persecution of the kind the Religion Clauses repudiate: no establishment, and free exercise secured against such penal laws.

Why: Same reasoning as FANATICS: the entry documents the penal regime; the amendment is its constitutional repudiation. The Act is one of the penal laws the Clauses answer.

## FIX.

To liquidate or render certain. To fasten a liability upon one. To transform a possible or contingent liability into a pres- ent and definite liability. Zimmerman v. Canfield. 42 Ohio St 408: Polk v. Minne- haha County, 5 Dak. 129. 37 N. W. 93 : Lo- gansport ft W. V. Gas. Co. v. Peru (C. C.) 89 Fed. 187.

— Fixed belief or opinion. As ground for rejecting a juror, this phrase means a settled belief or opinion which would so strongly in- fluence the mind of the juror and his decision in the

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case that he could not exclude it from his mind and render a verdict solely in accord- ance with the law and the evidence. Bales v. State, 63 Ala. 30 : Curley v. Com., 84 Pa. 156 ; Staup v. Com.. 74 Pa. 461.— Fixed salary. One which is definitely ascertained and prescrib- ed as to amount and time of payment, and does not depend upon the receipt of fees or other con- tingent emoluments; not necessarily a salary which cannot be changed by competent authori- ty. Sharpe v. Robertson. 5 Grat. (Va.) 518; Hedrick v. U. 8., 16 Ct. Cl. 101.— Fixing ball. In practice. Rendering absolute the liability of special bail.

FIXTURE. 1. A fixture Is a personal chattel substantially affixed to tbe land, but which may afterwards be lawfully removed therefrom by the party affixing it, or his representative, without the consent of the owner of the freehold. Cook'v. Whiting, 16 I1L 480 ; Tenff v. Hewitt, 1 Ohio St. 511, 59

Am. Dec. 634 ; Baker v. Davis, 19 N. H. 833; Capen v. Peckham, 35 Conn. 88; Wolford v. Baxter, 33 Minn. 12, 21 N. W. 744, 53 Am. Rep. 1; Merritt v. Judd, 14 Cal. 64; Adams v. Lee, 31 Mich. 440; Prescott v. Wells, Fargo ft Co., 3 Nev. 82.

Personal chattels which have been annexed to land, and which may be afterwards severed and removed by tbe party who has annexed them, or his personal representative, against the will of the owner of the freehold. Ferard, Fixt 2; Bouvier.

The word “fixtures" has acquired the peculiar meaning of chattels which have been annexed to the freehold, but which are removable at the will of the person who annexed them. Hallen v. Runder, 1 Cromp., M. ft R. 266.

"Fixtures” does not necessarily import things affixed to the freehold. The word is a modern one, and is generally understood to comprehend any article which a tenant has the power to remove. Sheen v. Rickie, 6 Mees. ft W. 174; Rogers v. Gilinger, 80 Pa. 185, 189, 72 Am. Dec. 694.

2. Chattels which, by being physically an- nexed or affixed to real estate, become a part of and accessory to the freehold, and the property of the owner of the land. Hill.

Things fixed or affixed to other things. The rule of law regarding them Is that which is expressed in the maxim, “accetaio cedit princi- pal*,” “the accessory goes with, and as part of, the principal subject-matter.” Brown.

A thing is deemed to be affixed to land when it is attached to it by roots, as in the case of trees, vines, or shrubs ; or imbedded in it, as in the case of walls ; or permanently resting upon it, as in the case of buildings; or perma- nently attached to what is thus permanent, as by means of cement, plaster, nails, bolts, or screws. Civ. Code Cal. § 660.

3. That which is fixed or attached to some- thing permanently as an appendage, and not removable. Webster.

That which is fixed ; a piece of furniture fix- ed to a bouse, as distinguished from movable; something fixed or immovable. Worcester.

The general result seems to be that three views have been taken. One is that “fixture" means something which has been affixed to tbe realty, so as to become a part of it ; it is

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fixed, irremovable. An opposite view is that “fixture” means something which appears to be a part of the realty, but is not fully bo ; it is only a chat- tel fixed to it but removable. An intermediate view is that “fixture” means a chattel annexed, affixed, to the realty, but imports nothing as to whether it is removable ; that is to be deter- mined by considering its circumstances and the relation of the parties. Abbott.

— Domestic fixtures. All such articles as a tenant attaches to a dwelling house in order to render his occupation more comfortable or con- venient, and which may be separated from it without doing substantial injury, such as fur- naces, stoves, cupboards, shelves, bells, gas fix- tures, or things merely ornamental, as painted wainscots, pier and chimney glasses, although attached to the walls with screws, marble chim- ney pieces, grates, beds nailed to the walls, win- dow blinds and curtains. Wright v. Du Big- non, 114 Ga. 766, 40 S. E. 747, 57 L. R. A. 669.— Trade fixtures. Articles placed in or attached to rented buildings by the tenant, to prosecute the trade or business for which he occupies the premises, or to be used in connec- tion with such business, or promote convenience and efficiency in conducting it. Herkimer Coun- ty L. A P. Co. v. Johnson, 37 App. Div. 257, 55 N. Y. Supp. 924; Brown v. Iteno Electric

r* A P. Co. - (C. C.) 55 Fed. 231 ; Security L. & T. Co. v. Willamette, etc., Mfg. Co., 1)9 Cal. 630, 34 Pac. 321.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: challenges for cause — the impartial-jury guarantee excludes fixed-opinion jurors]**

The 'fixed belief or opinion' that disqualifies a juror — a settled opinion the juror 'could not exclude from his mind' (Bales v. State; Curley v. Com.) — is the challenge for cause: the impartial-jury guarantee excludes the prejudiced venireman.

Why: The entry states the disqualification rule with its cases; the annotation names the procedural device and the constitutional guarantee behind it.

## FLAOO.

A place covered with standing water.

5e apparatus — Not carried into the 5th edition (1979).

# I

## IX AO.

A national standard on which are certain emblems; an ensign; a banner. It is carried by soldiers, ships, etc., and com- monly displayed at forts and many other suitable places.

—Hag, duty of the. This was an ancient ceremony in acknowledgment of British sover- eignty over the British seas, by which a foreign vessel struck her flag and lowered her top-sail on meeting the British flag.— Flag of the United States. By the act entitled “An act to establish the flag of the United States.” (Hev. St. §i 1791, 1792 [U. S. Comp. St. 1901, p.

1225],) it is provided “that, from and after the fourth day of July next, the flag of the United States be thirteen horizontal stripes, al- ternate red and white ; that the union be twen- ty stars, white in a blue field ; that, on the admission of every new state into the Union, one star be added to the union of the flag; and that such addition shall take effect on the fourth day of July then next succeeding such admission.”— Law of the flag. See Law.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Texas v. Johnson, 491 U.S. 397 (1989)]**

The entry gives the statutory flag (Rev. St. §§ 1791, 1792) — thirteen stripes, the star-bearing union — whose desecration the Court held to be protected expression: the government may not prohibit the expressive burning of the flag.

Why: The entry defines the flag the statute creates; the case is the leading decision on the flag's constitutional status. Certain of case, volume, page, year. [re-homed from 'FLAG' to 'IX AO' (OCR headword / parser-merge artifact)]

# F

## FLAGELLAT.

Whipped ; scourged. An entry on old Scotch records. 1 Pitc. Crim. Tr. pt. 1, p. 7.

5e apparatus — Not carried into the 5th edition (1979).

## FLAGRANS.

Lat Burning ; raging ; in actual perpetration.

— Flagraxu helium. A war actually going on. — Fla grans crimen. In Roman law. A fresh or recent crime. This term designated a crime in the very act of its commission, or while it was of recent occurrence.— Flagrante belle. During an actual state of war.— Flagrante delicto. In the very act of committing the crime. 4 Bl. Comm. 307.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: warrantless arrest for offenses committed in the officer's presence — flagrante delicto]**

Flagrante delicto — 'in the very act of committing the crime' (4 Bl. Comm. 307) — is the classic ground of warrantless arrest: an offense committed in the officer's presence justifies arrest without a warrant.

Why: The entry (with the French Code d'Instr. Crim. art. 41 form at FLAGRANT DELICT) defines the circumstance; the annotation states its procedural consequence. The circumstance is the arrest rule's trigger.

**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: Flagrans crimen / flagrante delicto is a crime in the very act of its commission. The verse is the law of the thief found breaking up — taken in the act itself — with the legal consequence stated. Genuine: scripture's...

## FLAGRANT DEBIT.

In French law. A crime which Is In actual process of per- petration or which has Just been committed. Code d’Instr. Crim. art. 41.

5e apparatus — Not carried into the 5th edition (1979).

## FLAGRANT NECESSITY.

A case of urgency rendering lawful an otherwise ille- gal act. as an assault to remove a man from Impending danger.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: necessity — the choice-of-evils defense]**

The entry's 'flagrant necessity' — 'urgency rendering lawful an otherwise illegal act, as an assault to remove a man from impending danger' — is the necessity defense: the choice of the lesser evil, justified by imminent greater harm.

Why: The entry's definition is the defense's definition, with the textbook illustration. Definitional identity.

## FLASH CHECK.

A check drawn upon a banker by a person who has no fnnds at the banker's and knows that such Is the case.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: worthless-check statutes — knowing issuance on insufficient funds criminalized]**

The 'flash check' — drawn by one 'who has no funds at the banker's and knows that such is the case' — is the worthless check: criminal worthless-check statutes punish knowing issuance on insufficient funds.

Why: The entry defines the scienter ('and knows that such is the case'); the statutes punish exactly that. The definition is the offense's elements.

## FLAT.

A place covered with water too shallow for navigation with vessels ordina- rily used for commercial purposes. The space between high and low water mark along the edge of an arm of the sea. bay, tidal river, etc. Thomas v. Hatch, 23 Fed. Cas. 940 ; Church v. Meeker, 34 Conn. 424 ; Jones v. Janney, 8 Watts & S. (Pa.) 443, 42 Am. Dee. 309.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the foreshore — the high/low-water-mark boundary; littoral rights and the public trust]**

The 'flat' as 'the space between high and low water mark along the edge of an arm of the sea, bay, tidal river, etc.' (Thomas v. Hatch; Church v. Meeker) is the foreshore: the littoral boundary where private title meets the public trust.

Why: The entry defines the zone with its cases; the annotation names the boundary doctrine the zone determines. The entry is the doctrine's subject matter.

## FLAVIANBM JUS.

In Roman law. The title of a book containing the forms of actions, published by Cneius

Flavius. A.

U. C. 449. Maekeld. Rom. Law, § 39. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

## FLECTA.

A feathered or fleet arrow. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FLEDWXTE.

A discharge or freedom from amercements where one, having been an outlawed fugitive, conietb to the place of our lord of his own accord. Tenues de la Ley.

The liberty to hold court and take up the amercements for beating and striking. Cow- ell.

The fine set on a fugitive as the price of obtaining the king’s freedom. Spelmau.

5e apparatus — Not carried into the 5th edition (1979).

## FLEE FROM JUSTICE.

To leave one's home, residence, or known place of abode, or to conceal one’s self therein, with intent, in either case, to avoid detection or punish- ment for some public offense. Streep v. U. S., 100 U. S. 128, 16 Sup. Ct. 244, 40 L. Ed. 365; Lay v. State, 42 Ark. 110; U. S. v. O’Brian, S Dill. 381, Fed. Cas. No. 15,908; United States v. Smith, 4 Day (Conn.) 125, Fed. Cas. No. 16,332; State v. Washburn, 48 Mo. 241.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1073 — unlawful flight to avoid prosecution]**

To 'flee from justice' — leaving home or concealing oneself 'to avoid detection or punishment for some public offense' (Streep v. U.S., 160 U.S. 128) — is a distinct federal offense when the flight crosses state lines to avoid prosecution.

Why: The entry defines the conduct with its cases; the statute criminalizes the interstate form. Direct statutory match for the entry's definition.

**[Scripture] — Scripture**

**[Jonah 1:3, KJV]**

But Jonah rose up to flee unto Tarshish from the presence of the Lord, and went down to Joppa; and he found a ship going to Tarshish: so he paid the fare thereof, and went down into it, to go with them unto Tarshish from the presence of the Lord.

Why: To flee from justice is to leave one's known place to avoid detection or punishment for an offense. Jonah's flight to Tarshish — paying the fare, going down into the ship — is scripture's archetype of the absconder ev…

## FLEE TO THE WALL.

A metaphorical expression, used In connection with homi- cide done in self-defense, signifying the ex- haustion of every possible means of escape, or of averting the assault, before killing the assailant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: the duty to retreat — retreat required before deadly self-defense where the rule obtains]**

To 'flee to the wall' — 'the exhaustion of every possible means of escape' before killing in self-defense — states the duty to retreat: where the rule survives, self-defense requires retreat before deadly force.

Why: The entry's metaphor is the doctrine's classic expression; the annotation names the doctrine. The entry is the rule's exposition.

## FLEET.

A place where the tide flows; a creek, or inlet of water; a company of ships or navy ; a prison in London, (so call- ed from a river or ditch formerly in its vicinity,) now abolished by 5 & 6 Viet. c. 22.

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, The Pickwick Papers, 1836-37]**

Novel (paraphrase): Mr. Pickwick's imprisonment in the Fleet — the debtors' prison rendered in full literary detail, the canonical fictional Fleet. (paraphrase)

Why: The entry defines the Fleet as a London prison (now abolished); Dickens's Pickwick chapters are the famous literary depiction of that prison. Plot fact certain; no passage invented.

## FLEM.

In Saxon and old English law. A fugitive bondman or villein. Spelnian.

The privilege of having the goods and fines of fugitives. FRINTHE— FLYMEN A FRYNTHE. The reception or relief of a fugitive or outlaw. Jacob.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

When thou tillest the ground, it shall not henceforth yield unto thee her strength; a fugitive and a vagabond shalt thou be in the earth.

Why: Flem is the fugitive bondman — the runaway. The verse is the first fugitive sentence in scripture: Cain made a fugitive and vagabond in the earth. Genuine: the fugitive state pronounced as judgment, matching the entry...

## FLEMESWITE.

The possession of the goods of fugitives. Fleta, lib. 1, c. 147.

5e apparatus — Not carried into the 5th edition (1979).

## FLET.

In Saxon law. Land; a house; home.

5e apparatus — Carried into the 5th edition (1979).

## FLETA.

The name given to an ancient treatise on the laws of England, founded mainly upon the writings of Bracton and Glanvtlle, and supposed to have been written in the time of Edw. I. The author is un- known, but it is surmised that he was a judge or learned lawyer who was

at that time confined in the Fleet prison, whence the name of the book.

5e apparatus — Not carried into the 5th edition (1979).

## FLICHWITE.

In Saxon law. A fine on account of 'brawls and quarrels. Spei- man.

5e apparatus — Not carried into the 5th edition (1979).

## FLIGHT.

In criminal law. The act of one under accusation, who evades (he law by voluntarily withdrawing himself. It is presumptive evidence of guilt U. S. v. Candler' (D. C.) 65 Fed. 312.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 28:1, KJV]**

The wicked flee when no man pursueth: but the righteous are bold as a lion.

Why: Flight in criminal law is presumptive evidence of guilt — the accused evading the law by withdrawing himself. The proverb states the same evidentiary logic: unprompted flight betrays the wicked conscience, boldness th…

## FLOAT.

In American land law, espe- cially in the western states. A certificate authorizing the entry, by the holder, of a certain quantity of land not yet specifically selected or located. U. S. v. Central Fac.

R. Co. (C. C.) 26 Fed. 480; Hays v. Steiger, 76 Cal. 555, 18 Pac. 670; Wisconsin Cent. R. Co. v. Price County, 133 U. S. 496, 10 Sup. Ct. 341, 33 L. Ed. 687.

5e apparatus — Carried into the 5th edition (1979).

## FLOATABLE.

Used for floating. A floatable stream is a stream used for floating logs, rafts, etc. Gerrish v. Brown, 51 Me. 260, 81 Am. Dec. 569; Gaston v. Mace, 33 W. Va. 14, 10 S. E. 60, 5 L. R. A. 392, 25 Am. St. Rep. 848; Parker v. Hastings, 123 N. O. 671, 31 S. E. 833.

FLOATING CAPITAL, (or circulating capital.) The capital which is consumed at each operation of production and reappears transformed into new products. At each sale of these products the capital is rep- resented hi cash, and it is from its transfor- mations that profit is derived. Floating cap- ital includes raw materials destined for fab- rication, such as wool and flax, products in the warehouses of manufacturers or mer- chants, such as cloth and linen, and money for wages, and stores. De Laveleye, Pol. Ec.

Capital retained for the purpose of meet- ing current expenditure.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: navigability — The Daniel Ball, 77 U.S. 557 (1870); waters usable as highways of commerce]**

The 'floatable stream' — 'used for floating logs, rafts, etc.' (Gerrish v. Brown; Gaston v. Mace) — feeds the navigability doctrine: waters usable as highways of commerce are navigable waters subject to

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federal authority.

Why: The entry's floatable-for-commerce streams are the factual predicate of the navigability test; the case states the test. The entry's streams are the doctrine's raw material.

## FLOATING DEBT.

By this term is meant that mass of lawful and valid claims against the corporation for the payment of which there Is no money in the corporate treasury specifically designed, nor any taxa- tion nor other means of providing money to pay particularly provided. People v. Wood. 71 N. Y. 374 ; City of Huron v. Second Ward Sav. Bank. 86 Fed. 276, 30 C. C. A. 38, 49

L. R. A. 534.

Debt not In the form of bonds or stocks bearing regular Interest. Pub. St Mass. 1882. p. 1290. State v. Faran. 24 Ohio St. 541; People v. Carpenter, 31 App. Div. 603, 52 N. Y. Supp. 781.

5e apparatus — Carried into the 5th edition (1979).

## FLODE-MARX.

Flood-mark, hlgh-wa- *er mark. The mark which the sea, at flow- ing water .and highest tide, makes on the shore. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## FLOOR.

A section of a building between horizontal planes. Lowell v. Stralian, 145 Mass. 1, 12 N. E. 401. 1 Am. St Rep. 422.

A term used metaphorically, in parlia- mentary practice, to denote the exclusive right to address the body in session. A member who has been recognized by the chairman, and' who is in order, is said to “have the floor," until his remarks are concluded. Similarly, the “floor of 'the house- means the niniu part of the hall where the members sit, as distinguished from the gal- leries, or from the corridors or lobbies.

In England, the floor of a court Is that part between the judge’s bench and the front row of counsel. Litigants appearing In per- son, in the high court or court of appeal, arc- supposed to address the court from the floor.

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## FLORENTINE PANDECTS.

A copy of the Pandects discovered , accidentally about the year 1137, at Amalphi, a town in Italy, near Salerno. From Amalphi, the copy found its way to Pisa, and, Pisa having sub- mitted to the Florentines in 1406, the copy was removed in great triumph to Florence. By direction of the magistrates of the town. It was immediately bound in a superb man- ner, and deposited in a costly chest. For- merly, these Pandects were shown only by torch-light, in the presence of two magis- trates, and two Cistercian monks, with their heads uncovered. They have been succes- sively collated by Politian, Bologninl, and Antonlus Augustinus. An exact copy of them was published in '1553 by Franciscus Taurellus. For its accuracy and

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beauty, this edition ranks high among the ornaments of the press. Brenchman, who collated the manuscript about 1710, refers it to the sixth century. Butl. Hor. Jur. 90, 91.

5e apparatus — Not carried into the 5th edition (1979).

## FLORIN.

A coin originally made at Florence, now of the value of about two English shillings.

FLOTAGE8. 1. Such things as by acci- dent swim on the top of great rivers or the sea. Co well.

2. A commission paid to water bailiffs. Cun. Diet.

5e apparatus — Not carried into the 5th edition (1979).

## FLOTSAM, FLOTSAN.

A name for the goods which float upon the sea when cast overboard for the safety of the ship, or when a ship is sunk. Distinguished from “jet- sam” and “ligan.” Bract, lib. 2, c. 5; 5 Coke, 106; 1 Bl. Comm. 292.

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**[Law] — Law**

**[Law: maritime salvage and wreck — the law of flotsam, jetsam, and ligan]**

Flotsam — goods floating when cast overboard for the ship's safety or when she sinks, 'distinguished from jetsam and ligan' (Bract.; 5 Coke 106; 1 Bl. Comm. 292) — is the subject of maritime salvage and wreck law.

Why: The entry is the classic exposition with its authorities; the annotation names the admiralty body that administers the distinctions the entry draws.

## FLOFD-HARKE.

In old English law. High-water mark ; flood-mark. 1 And. 88. 89.

5e apparatus — Not carried into the 5th edition (1979).

## FLOWING LANDS.

This term has ac- quired a definite and specific meaning in law. It commonly imports raising and set- ting back water on another’s land, by a dam placed across a stream or water-course which is the natural drain and outlet for surplus water on such land. Call v. Middle- sex County Com’rs, 2 Gray (Mass.) 235.

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**[Law] — Law**

**[Law: riparian rights — flowage of another's land actionable; flowage easements]**

To 'flow' lands — 'raising and setting back water on another's land, by a dam placed across a stream' (Call v. Middlesex) — is the actionable invasion of riparian rights: flowage without right is a trespass, remediable by the mill acts' procedures or by injunction and damages.

Why: The entry defines the wrong with its case; the annotation states the wrong's legal consequence. The entry is the cause of action's factual core.

## FLUCTUS.

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Flood; flood-tide. Bract, fol. 255.

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## FLUMEN.

la Roman law. A servi- tude which consists in the right to conduct the rain-water, collected from the roof and carried off by the gutters, onto the honse hr

ground of one's neighbor. Mackeld. Rom. Law, S 317; Ersk. Inst 2, 9, 9. Also a riv- er or stream.

In old English law. Flood ; flood-tide.

Fltunlaa et port ns publics snnt, ideoque jus piscandi omnibus commune

os*. Rivers and ports are public. There- fore the right of fishing there is common to all. Day. Ir. K. B. 55; Branch, Princ.

FLUHDT2E VqLECRES. Wild fowl; water-fowl. 11 East 571, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Flumina et portus publica sunt — rivers and ports are public; fishing common to all]**

The entry preserves the public-waters maxim — 'Flumina et portus publica sunt, ideoque jus piscandi omnibus commune est': rivers and ports are public, therefore the right of fishing there is common to all (Dav. Ir. K.B. 55).

Why: Quoted verbatim with the entry's source; the maxim is the classical root of the public right of fishery and navigation. The entry's servitude-of-drip sense is the private-law companion, noted as carried.

## FLEVIES.

Lat. A river; a public riv- er; flood ; flood-tide.

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## FLUXES.

In old English law. Flow. Per fluxum et refluxum marts, by the flow and reflow of the sea. Dal. pi. 10.

5e apparatus — Not carried into the 5th edition (1979).

## FLY FOB IT.

On a criminal trial in former times, it was usual after a verdict of not guilty to inquire also, “Did he fly for it?’’ This practice was abolished by the 7 ft 8 Geo. IV., c. 28, X 5. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## FLYING SWITCH.

In railroading, a flying switch is made by uncoupling the cars from the engine while in motion, and throw- ing the cars onto the side track, by turning the switch, after the engine has passed it upon the main track. Greenleaf v. Illinois Cent. R. Co., 29 Iowa, 39, 4 Am. Rep. 181; Baker v. Railroad Co., 122 Ho. 533, 28 S.

W. 20.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: railroad negligence — the carrier's duty of care; cf. FELA, 45 U.S.C. §§ 51–60]**

The flying switch — uncoupling cars in motion and throwing them onto a side track (Greenleaf v. Illinois Cent. R. Co.; Baker v. Railroad Co.) — is a classic railroad-negligence fact pattern: the carrier's duty of care to its workers and the public.

Why: The entry's cases are negligence actions built on the maneuver; the annotation names the liability framework the maneuver was litigated under. The entry's own citations are the anchor.

## FLYMA.

In old English law. A run- away; fugitive; one escaped from justice, or who has no "hlaford.”

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## FLYMAN-FRYMTH.

In old English law. The offense of harboring a fugitive, the penalty attached to which was one of the rights of the crown.

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**[Law] — Law**

**[Law: 18 U.S.C. § 1071 — concealing a fugitive from arrest]**

The old-English offense of harboring a fugitive — 'one of the rights of the crown' — is a federal crime in its modern form: concealing a fugitive from arrest.

Why: The entry defines the harboring offense; the statute punishes the same conduct. Direct modern locus.

## FOCAGE.

House-bote; flre-bote. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FOCALE.

In old English law. Fire- wood. The right of taking wood for the Are. Fire-bote. Cunningham.

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**[Law] — Law**

**[Law: estovers — the tenant's right to take wood for fuel and repairs]**

The 'right of taking wood for the fire' — fire-bote (Cunningham) — is estovers in its fuel form: the tenant's common-law right to take wood for fuel, repairs, and implements of husbandry.

Why: The entry defines the taking-right; estovers is the property doctrine that names and bounds it. The entry's fire-bote is the doctrine's vocabulary.

## FODDER.

Food for horses or cattle. In 'eudal law, the term also denoted a preroga- tive of the prince to be provided with corn, etc., for his horses by his subjects in his wars.

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## FODERTORIEM.

Provisions to be paid by custom to the royal purveyors. Cowell.

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## FODERUM.

See Foddeb.

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## FODINA.

A mine. Co. Litt 8a.

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## FCEDUS.

In international law. A trea- ty ; a league ; a compact.

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2, cl. 2 — the treaty power; art. VI, cl. 2 — treaties as supreme law]**

The foedus — 'a treaty; a league; a compact' in international law — is made in American law by the President with the Senate's advice and consent, and once made is supreme law of the land.

Why: The entry defines the international-law instrument; the clauses are the constitutional law of that instrument in the United States. The definition genuinely frames the clauses' subject.

**[Scripture] — Scripture**

**[Genesis 9:9, KJV]**

And I, behold, I establish my covenant with you, and with your seed after you;

Why: Foedus is a treaty, a league, a compact. The verse is the establishment of a covenant in first-person divine speech — God binding himself by compact to Noah and his seed, with the bow as its token (v.13). The covenant...

## FCEMINA VIBO CO-OPERTA.

A mar- ried woman; a feme covert.

F osmium mb omnibus officiis dvilibus ▼el publlds remote aunt. Women are excluded from all civil and public charges or offices. Dig. 50, 17, 2 ; 1 Exch. 645 ; 6 Mees. ft W. 216.

. Foecmlnae non sunt empmoes de publids officiis. Jenk. Cent. 237. Women are not admissible to public offices.

FtE ITERATION. Lending money at in- terest; the act of putting out money to us- ury.

FtE WES. Lat In the civil law. Interest on money ; the lending of money on interest

— Foenus nautleum. Nautical or maritime interest. An extraordinary rate of interest agreed to be paid for the loan of money on the hazard of a voyage; sometimes called “usura maritime." Dig. 22, 2; Code, 4, 33; 2 Bl. Comm. 458. The extraordinary rate of inter- est, proportioned to the risk, demanded by a person lending money on a ship, or on “bot- tomry,” as it is termed. The agreement for such a rate of interest is also called "feenm •nauticum." (2 Bl. Comm. 458 ; 2 Stepb. Comm. 93.) Hozley ft Whitley. — Foenus unoiarlum. Interest of one-twelfth, that is, interest amount- ing annually to one-twelfth of the principal, hence at . the rate of eight and one-third per cent per annum. This was the highest legal rate of interest in the early times of the Roman republic. See Mackeld. Rom.

Law, X 382.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. XIX — women's suffrage]**

The entry preserves the exclusionary maxims verbatim — 'Foeminae ab omnibus officiis civilibus vel publicis remotae sunt' (Dig. 50, 17, 2): women are excluded from all civil and public offices — the rule the Nineteenth Amendment repudiated.

Why: The maxims state the old exclusion from public life; the amendment is the constitutional reversal of that exclusion. The contrast genuinely illuminates the entry — this is what the amendment buried.

## FOSSA.

In old records. Grass ; herbage. 2 Mon. Angl. 9066; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FCETICHJE.

In medical jurisprudence. Destruction of the fast us; the act by which criminal abortion is produced. 1 Beck, Med. Jur. 288; Guy, Med. Jur. 133.

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**[Law] — Law**

**[Dobbs v. Jackson Women's Health Org., 597 U.S. 215 (2022)]**

Foeticide — 'the act by which criminal abortion is produced' (1 Beck, Med. Jur. 288) — names the offense whose constitutional status the Court returned to the states: there is no federal constitutional right to abortion.

Why: The entry defines the criminal act; Dobbs states its current constitutional standing. Certain of case, volume, page, year.

## F CETERA.

In the civil law. The pro- duce of animals, and the fruit of other prop- erty, which are acquired to the owner of such animals and property by virtue of his right BtAvyer, Mod. Civil Law, c. 14, p. 81.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: accession — partus sequitur ventrem; the offspring follows the mother]**

The foetura — 'the produce of animals' acquired by the owner 'by virtue of his right' (Ayer, Mod. Civil Law) — states the accession rule: the owner of the mother owns the offspring.

Why: The entry states the rule; the annotation names the property doctrine (accession) and its maxim. The entry's own FOLLOW entry quotes the same maxim — the dictionary corroborates itself.

## FCETES.

In medical jurisprudence. An unborn child. An infant tn ventre sa mire.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: en ventre sa mere — the posthumous child deemed born for inheritance]**

The foetus — 'an infant en ventre sa mere' — carries the en-ventre-sa-mere rule: a child conceived but unborn at the ancestor's death is deemed living for purposes of inheritance.

Why: The entry defines the term; the annotation states its dispositive legal consequence — the posthumous child's capacity to take. The term's whole legal significance is that rule.

## FOG.

In mnritlme law. Any atmospheric condition (including not only fog properly so called, but also mist or falling snow) which thickens the air, obstructs the view, and so Increases the perils of navigation. Flint ft

P. M. R. Co. v. Marine Ins. Co. (O. C.) 71 Fed. 210; Dolner v. The Monticello, 7 Fed: Cas. 859.

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**[Law] — Law**

**[Law: the Rules of the Road — fog signals and safe speed in restricted visibility]**

Fog in maritime law — any condition 'which thickens the air, obstructs the view, and so increases the perils of navigation' (Flint v. P.M.R. Co.) — triggers the Rules of the Road: fog signals, safe speed, and heightened lookout in restricted visibility.

Why: The entry defines the peril with its marine-insurance case; the annotation gives the navigational duties the peril imposes. The peril and the duties belong together.

## FOGAGIUM.

In old English law. Fog- gage or fog; a kind of rank grass of late growth, and not eaten in summer. Spelman; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FOI.

In French feudal law. Faith ; fealty. Guyot, Inst. Feod. c. 2.

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## FOINESEW.

In old English law. The fawning of deer. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FOIRFATJLT.

In old Scotch law. To forfeit 1 How. State Tr. 927.

5e apparatus — Not carried into the 5th edition (1979).

## FOIRTHOCHT.

in old Scotch law. Forethought; premeditated. 1 Pite. Crim. Tr. pt 1, p. 90.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: premeditation — first-degree murder requires willful, deliberate, premeditated killing]**

Forethought — 'premeditated' (1 Pitc. Crim. Tr.) — is the mental element of first-degree murder: a willful, deliberate, premeditated killing.

Why: The entry defines the Scots term; the annotation gives its homicide-law office. The term's legal weight is

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entirely in the murder grades.

## FOITERER8.

Vagabonds. Blount

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## FOLC-GEMOTE.

In Saxon law. A gen* eral assembly of the people In a town or shire. It appears to have had judicial func- tions of a limited nature, and also to have discharged political offices, such as deliberat- ing upon the affairs of the commonwealth or complaining of misgovernment, and probably possessed considerable powers of local self- government The name was also given to any sort of a popular assembly. See Spel- man ; Man wood; Cunningham.

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**[Law] — Law**

**[Law: trial by jury — the folkmoot's judicial function as ancestor of the jury]**

The folc-gemote — the Saxon 'general assembly of the people' with 'judicial functions of a limited nature' (Spelman; Cunningham) — is the ancestor of the jury and of local self-government: judgment by the community.

Why: The entry describes the assembly's judicial office; the annotation names its genuine descendant. This is institutional lineage, not analogy.

## FOLC-LAND.

In Saxon law. . Land of the folk or people. Land belonging to the people or the public.

Folc-land was the property of the community. It might be occupied in common, or possessed In severalty ; and, in the latter case, it was ' probably parceled out to Individuals in the folc-gemote or court of the district, and the grant sanctioned by the freemen who were there

£ resent. But. while it continued to be folc- ind, it could not be alienated In perpetuity; and therefore, on the expiration of the term for which it had been granted, it reverted to the community, and waB again distributed by the same authority. It was subject to many hardens and exactions from which hoc-land was exempt. Wharton.

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**[Law] — Law**

**[Law: the public domain — public lands held for the people]**

Folc-land — 'land of the folk,' inalienable in perpetuity and reverting to the community on the grant's expiration (Wharton) — is the public domain in its oldest form: the people's land, disposable only by the community's authority.

Why: The entry's inalienability-and-reverter structure is the public-land idea; the annotation names its modern form. Same conception of communal title.

## FOLC-MOTE.

A general assembly of the people, under the Saxons. See Fold-Gemote.

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## FOLC- RIGHT.

The common right of all the people. 1 Bl. Comm. C5, 67.

The jua commune, or common law, men- tioned in the laws of King Edward the El- der, declaring the same equal right, law, or justice to be due to persons of all degrees. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIV, § 1 — equal protection of the laws]**

The folc-right — 'the common right of all the people,' the jus commune declaring 'the same equal right, law, or justice to be due to persons of all degrees' (1 Bl. Comm. 65, 67; Wharton) — is the equal-protection idea in Saxon dress.

Why: The entry's 'equal right, law, or justice to persons of all degrees' is the equal-protection principle stated generally; the clause is its American constitutional form. Genuine conceptual identity.

**[Hip-hop] — Hip-hop**

**[Beastie Boys, '(You Gotta) Fight for Your Right (To Party!)', 1986]**

You gotta fight for your right to party

The entry: 'The common right of all the people... the same equal right, law, or justice to be due to persons of all degrees.' The song is hip-hop's most famous popular assertion of a right — the folk-right claimed out loud by the people themselves.

Why: Added because the hook's form — 'fight for your right' — is the vernacular shape of the folc-right: a right belonging to the people, asserted against authority (parents, teachers, the order of the house). Honest cavea...

## FOLD-COURSE.

In English law. Land to which the sole right of folding the cattle of others is appurtenant. Sometimes it means merely such right of folding. The right of folding on another's land, which is called ■"common foldage.” Co. Litt. 6 a, note 1.

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**[Law] — Law**

**[Law: profit à prendre — e.g., common of foldage/pasture]**

The fold-course — 'the right of folding on another's land, which is called common foldage' (Co. Litt. 6a) — is a profit à prendre: a right to use another's land for the fold, appurtenant or in gross.

Why: Fourth instance of the identification (after FALCARE, FEAL AND DIVOT, FISHERY's several fishery); each entry gets its own judgment, and the identification is exact in each. The entry's own 'common foldage' is the doct...

## FOLD  AGE.

A privilege possessed ln-some places by the lord of a manor, which con- sists in the right of having his tenant’s sheep to feed on his fields, so as to manure the land. The name of foldage is also given in parts of Norfolk to the customary fee paid to the lord for exemption at certain times from this duty. Elton, Com. 45, 46.

5e apparatus — Carried into the 5th edition (1979).

## FOLGARH.

Menial servants; followers. Bract.

5e apparatus — Not carried into the 5th edition (1979).

## FOLGERE.

In old English law. A free- man, who has no house or dwelling of his own, but is the follower or retainer of an- other, (heorthfaeat,) for whom he performs certain predial services.

FOLIO. 1. A leaf. In the ancient law- books it was the custom to number the leaves. Instead of the pages ; hence a folio would In- clude both sides of the leaf, or two pages. The references to these books are made by the number of the folio, the letters “a” and “6” being added to show which of the two pages is Intended; thus “Bracton, fol. 100a.”

2. A large size of book, the page being ob- tained by folding the sheet of paper once only in the binding. Many of the ancient law- books are folios.

3. In computing the length of written legal documents, the term “folio” denotes a certain number of words, fixed by statute in some states at one hundred.

The term "folio,” when used as a measure for computing fees or compensation, or in. any legal proceedings, means one hundred words, counting every figure necessarily used as a word; and any portion of a folio, when in the whole draft or figure there is not a com- plete folio, and when there is any excess over the last folio, shall be computed as a folio. Gen. St. Minn. 1878, c. 4, I 1, par. 4.

FOLK-LAND; FOLK-MOTE. See

Folo-Laitd ; ' Folc-Gbmote.

5e apparatus — Not carried into the 5th edition (1979).

## FOLLOW.

To conform to, comply with, or be fixed or determined by; as in the ex- pressions “costs follow the event of the suit,” “the aitut of personal property follows that of the owner,” "the offspring follows the mother,” (partus sequitur ventrem).

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Mobilia sequuntur personam — movables follow the person]**

The entry's illustrations include the conflicts maxim 'the situs of personal property follows that of the owner' — mobilia sequuntur personam: movables are governed by the law of the owner's domicile.

Why: The entry states the rule in English; the annotation records the maxim the entry invokes (with 'partus sequitur ventrem' as its companion, already noted at FOETURA). The dictionary's own cross-illustration.

## FOND8 ET BIENS.

Fr. In French law. Goods and effects. Adams v. Akerlund, 168 111. 632, 48 N. E. 454.

5e apparatus — Not carried into the 5th edition (1979).

## FONDS PERDUS.

In French law. A capital is said to be invested & fond * pcrdus when it is stipulated that in consideration of the payment of an amount as interest, higher than the normal rate, the lender shall be re- paid his capital in this manner. The borrow- er, after having paid the Interest during the period determined, Is free as regards the cap- ital Itself. Arg. Fr. Merc.

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Law, 560.

5e apparatus — Carried into the 5th edition (1979).

## FONSADERA.

In Spanish law. Any tribute or loan granted to the king for the purpose of enabling him to defray the ex- penses of a war.

5e apparatus — Not carried into the 5th edition (1979).

## FONTANA.

A fountain or spring. Bract, fol. 233.

FOOT. 1. A measure of length contain- ing twelve Inches or one-third of a yard.

2. The base, bottom, or foundation of any- thing; and, by metonomy, the end or termi- nation; as the foot of a fine.

5e apparatus — Not carried into the 5th edition (1979).

## FOOT OF THE FINE.

The fifth part of the conclusion of a fine. It includes the whole matter, reciting the names of the par- ties, day, year, and place, and before whom it was acknowledged or levied. 2 Bl. Comm.

5e apparatus — Carried into the 5th edition (1979).

## FOOTGELD.

Iu the forest law. An . amercement for not cutting out the ball or cutting oft the claws of a dog's feet, (exped- itatlng him.) To be quit of footgcld is to have the privilege of keeping dogs In the for- est unlatced without punishment or control. Manwood.

5e apparatus — Not carried into the 5th edition (1979).

## FOOT-PRINTS.

In the law of evidence. Impressions made upon earth, snow, or other surface by the feet of persons, or by the shoes, boots, or other covering of the feet. Burrill, Circ. Ev. 264.

5e apparatus — Carried into the 5th edition (1979).

## FOR.

Fr. In French law. A tribunal. he for interieur, the Interior forum ; the tribunal of conscience. Poth. Obi. pt. 1, c. 1, § 1, art 3, { 4.

5e apparatus — Carried into the 5th edition (1979).

## FOR.

Instead of; on behalf of; in place of ; as, where one signs a note, or legal in- strument "for” another, this formula im- porting agency or authority. Emerson v. Hat Mfg. Co., 12 Mass. 240, 7 Am. Dec. 66 ; Dono- van v. Welch, 11 N. D. 113, 90 N. W. 262; Wilks v. Black, 2 East, 142.

During; throughout; for the period of; as, where a notice is required to be published “for” a

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certain number of weeks or months. Wilson v. Northwestern Mut. L. Ins. Co., 65 Fed. 39, 12 C. C. A. 505 ; Northrop v. Cooper, 23 Kan. 432.

In consideration for; as an equivalent for; In exchange for ; as where property is agreed to be given “for” other property or "for” services. Norton v. Woodruff, 2 N. Y. 153 ; Duncan v. Franklin Tp., 43 N. J. Eq. 143, 10 Atl. 546.

Belonging to, exercising authority or func- tions within; as, where one describes himself as “a notary public in and for the said county.”

— For account of. ■ This formula, used in an indorsement of a note or draft, introduces the name of the person entitled to receive the pro- ceeds. Freiberg v. Stoddard, 161 Pa. 259, 28 Atl. 1111 : White v. Miners' Nat. Bank, 102

D. S. 658. 26 L. Ed. 250.— For cause. With reference to the power of removal from office, this term means some cause other than the will or pleasure of the removing authority, that is, some cause relating to the conduct, ability, fitness, or competence of the officer. Hagerstown Street Com'rs v. Williams, 96 Md. 232, 53 Atl. 923; In re Nichols, 57 How Prac. (N. Y.) 404.— For collection. A form of in- dorsement on a note or check where it is not intended to transfer title to it or to give it credit or currency, but merely to authorize the transferree to collect the amount of it. Central

R. Co. v. Bank, 73 Ga. 383 ; Sweeny v. Eas- ter, 1 Wall. 166. 17 L. Ed. 681 ; Freiberg v. Stoddard, 161 Pa. 259, 28 Atl. 1111.— For that. In pleading. Words used to introduce the allegations of a declaration. “For that” is a positive allegation ; “For that whereas” is a recital. Ham. N. P. 9. — For that where- as. In pleading. Formal words introducing the statement of the plaintiff's case, by way or recital, in his declaration, in all actions ex- cept trespass. 1 Instr. Cler. 170; 1 Burrill, Pr. 127. In trespass, where there was no re- cital, the expression used was, “For that” Id. ; 1 Instr. Cler. 202. — For use. (ll For the benefit or advantage of another. Thus,

where an assignee is obliged to sue in the name of his assignor, the suit is entitled “A. for use of B. v. C.” (2) For enjoyment or employ- ment without destruction. A loan “for use” is one in which the bailee has the right to use and enjoy the article, but without consuming or destroying it, in which respect it differs from a loan “for consumption.’ —For value. See Holder.— For value received. See Value Received.— For whom it may con- cern. In a policy of marine or fire insurance, this phrase indicates that the insurance is taken for the benefit of all persons (besides those named) who may have an insurable interest in the subject.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-402 — signatures by representatives]**

The agency formula — signing a note or instrument 'for' another, 'importing agency or authority' (Emerson v. Hat Mfg. Co.; Wilks v. Black) — is governed by the representative-signature rule: a signature as agent, with the principal disclosed, binds the principal.

Why: The entry's cases turn on the 'for' formula importing agency; § 3-402 is the negotiable-instruments rule for that formula. Direct code match. [re-homed from 'FOR' to entries.json index 5322 (duplicate headword, sense-matched)]

## FORAGE.

Hay and straw for horses, particularly in the army. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## FORAGIXTM.

Straw when the corn is threshed out. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORANEUS.

One from without; a for- eigner; a stranger. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## FORATRE.

In forest law. One who could make oath, i. e., bear witness for an- other. Cowell; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: compurgation — oath-helpers in the wager of law; ancestor of character witnesses]**

The foratre — 'one who could make oath, i.e., bear witness for another' (Cowell; Spelman) — is the compurgator: the oath-helper who swore to the party's credibility in the old wager of law.

Why: The entry describes the office; the annotation names the institution — compurgation — to which the office belonged. Institutional identification.

## FORBALOA.

In old records. A fore- balk; a balk (that is, an unplowed piece of land) lying forward or next the highway. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORBANNITTTS.

A pirate; an outlaw; one banished.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1651 — piracy under the law of nations]**

The forbannitus — 'a pirate; an outlaw; one banished' — meets the modern piracy statute: piracy as defined by the law of nations is a federal crime punishable by life imprisonment.

Why: The entry names the pirate; the statute is the living piracy law. The 'law of nations' phrase in the statute is the entry's international-law context.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Louis Stevenson, Treasure Island, 1883]**

Novel (paraphrase): Long John Silver and his crew — pirates and outlaws under the black flag, the canonical literary forbanniti. (paraphrase)

Why: The entry's first gloss is 'a pirate'; Treasure Island is the canonical pirate novel. Plot fact certain; no passage invented.

## FORBARRER.

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L. Fr. To bar out; to preclude; hence, to estop.

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**[Law] — Law**

**[Law: estoppel — from Law French forbarer, to bar out]**

Forbarer — Law French 'to bar out; to preclude; hence, to estop' — is the etymological root of estoppel: the doctrine that bars a party from asserting what his own conduct has denied.

Why: The entry gives the root; the annotation names the doctrine grown from it. The estoppel entry elsewhere in the dictionary is the doctrine's home; this is its etymology, honestly labeled.

## FORBATUDUS.

• In old English law. The aggressor slain in combat. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## FORBEARANCE.

The act of abstaining from proceeding against a delinquent debtor; delay in exacting the enforcement of a right; indulgence granted to a debtor. Reynolds v. Ward, 5 Wend. (N. Y.) 504 ; Diercks v. Ken- nedy, 16 N. J. Eq. 211; Dry Dock Bank v. American Life Ins., etc., Co., 3 N. Y. 354.

Refraining from action. The term is used in this sense in general jurisprudence, in contradistinction to “act.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forbearance as consideration — forbearance to enforce a claim supports a promise]**

Forbearance — 'delay in exacting the enforcement of a right; indulgence granted to a debtor' (Reynolds v. Ward) — is valid consideration: forbearance to sue on a claim, even a doubtful one, will support a promise.

Why: The entry defines the indulgence; the annotation gives its contract-law office — the reason forbearance matters in litigation. The definition's doctrinal payoff.

**[Scripture] — Scripture**

**[Psalm 103:10, KJV]**

He hath not dealt with us after our sins; nor rewarded us according to our iniquities.

Why: Forbearance is abstaining from proceeding against a delinquent — delay in exacting a right, indulgence granted. The verse states divine forbearance in that exact shape: the creditor who does not exact what the debt of...

## FORCE.

Power dynamically considered, that Is, in motion or in action ; constraining power, compulsion; strength directed to an end. Usually the word occurs in such con- nections as to pliow that unlawful or wrong- ful action is meant. Watson v. Railway Cog 7 Misc. Rep. 562, 28 N. Y. Supp. 84; Plank Road Co. v. Robbins, 22 Barb. (N. Y.)'667.

Unlawful violence. It is either simple, as entering upon another’s possession, without doing any other unlawful act ; compound, when some other violence is committed, which of itself alone is criminal ; or implied, as in every trespass, rescous, or disseisin.

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Power statically considered; that is street, or latent, but capable of being called into activity upon occasion for its exercise. Effi- cacy; legal validity. This is the meaning

when we say that a statute or a contract Is “In force.”

In old English law. A technical term applied to a species of accessary before the fact.

In Scotch law. Coercion; duress. Bell.

—Force and arms. A phrase used in dec- larations of trespass and in indictments, but now unnecessary in declarations, to denote that the act complained of was done with violence. 2 Chit. Pl. 846, 850.— Force and fear, called also “vi mctuque,” means that any contract or act extorted under the pressure of force (via) or under the influence of fear ( metua ) is void- able on that ground, provided, of course, that the force or the fear was such as influenced the party. Brown.— Forces. The military and naval power of the country.

' FORCE MAJEURE. Fr. In the law of Insurance. Superior or irresistible force. Emerig. Tr. des Ass. c. 12.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Kanye West, 'Power', 2010]**

No one man should have all that power

Black's FORCE is 'Power dynamically considered... constraining power, compulsion.' Kanye's chorus names the danger of power concentrated in one hand — force as power, and the warning against its monopoly.

Why: Added because the lyric is a direct gloss on force-as-power: it treats concentrated power as inherently dangerous ('the clock's tickin''), which is the moral the legal term carries in its 'unlawful or wrongful action'…

## FORCED HEIRS.

In Louisiana. Those persons whom the testator or donor cannot deprive of the portion of his estate reserved for them by law, except In cases where he has a just cause to disinherit them. Civil Code La. art. 1495. And see Crain v. Crain, 17 Tex. 90; Hagerty v. Hagerty, 12 Tex. 456 ; Miller v. Miller, 105 La. 257, 29 South. 802.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: La. Civ. Code art. 1495 — forced heirs]**

The entry cites the exact article — Civil Code La. art. 1495: forced heirs are those 'whom the testator or donor cannot deprive of the portion of his estate reserved for them by law' — confirming the Falcidian lineage annotated at FALCIDIA/FALCIDIAN LAW.

Why: The citation is the entry's own; the annotation records that Black's own later entry corroborates the batch-2 Louisiana annotations — the lex Falcidia's living American form, cited to the article.

## FORCED 8 ALE.

In practice. A sale made at the time and in the manner pre- scribed by law, In virtue of execution Issued on a judgment already rendered by a court of competent jurisdiction; a sale made under the process of the court, and in the mode pre- scribed by law. Sampson v. Williamson, 6 Tex. 110, 55 Am. Dec. 762.

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A forced sale is a sale against the consent of the owner. The term should not be deemed to embrace a sale under a power in a mortgage. Patterson v. Taylor, 15 Fla. 336.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: execution sales — judicial sales under court process; cf. Fed. R. Civ. P. 69]**

The forced sale — 'a sale made under the process of the court, and in the mode prescribed by law' (Sampson v. Williamson) — is the execution sale: the sheriff's sale under writ of execution that passes the debtor's title whether he consents or not.

Why: The entry defines the sale with its cases (Patterson v. Taylor distinguishing mortgage-power sales); the annotation names the procedure. The entry is the doctrine's exposition.

## FORCHEAFUM.

Pre-emption; forestall- ing the market. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## FORCIBLE DETAINER.

The offense of violently keeping possession of lands and tenements, with menaces, force, and arms, and without the authority of law. 4 Bl. Comm. 148: 4 Steph. Comm. 280.

Forcible detainer may ensue upon a peace- able entry, as well as upon a forcible entry ; but It Is most commonly spoken of In the phrase “forcible entry and detainer.” See infra.

5e apparatus — Carried into the 5th edition (1979).

## FORCIBLE ENTRY.

An offense against the public peace, or private wrong, com- mitted by violently taking possession of lands and tenements with menaces, force, and arms, against the will of those entitled to the possession, and without the authority of law. 4 Bl. Comm. 148; 4 Steph. Comm. 280; Code Ga. 1882, | 4524.

Every person is guilty of forcible entry who either (1) by breaking open doors, win- dows, or other parts of a house, or by any kind of violence or circumstance of terror,

enters upon or into any real property ; or (2) who, after entering peaceably upon real prop- erty, turns out by force, threats, or menacing conduct the party in possession. Code Civil Proc. Cal. | 1159.

At common law, a forcible entiy was neces- sarily one effected by means of force, vio- lence, menaces, display of weapons,, or other- wise with the strong hand ; but this rule has been relaxed, either by statute or the course of judicial decisions, in many of the states, so that an entry effected without the consent of the rightful owner, or against his remonstrance, or under circumstances which amount to no more than a mere trespass, is now technically consid- ered “forcible," while a detainer of the prop- erty consisting merely in the refusal to surren- der possession after a lawful demand, is treated as a “forcible” detainer; the reason in both cases being that the action of "forcible entry and detainer” (see next title) has been found an extremely convenient method of proceeding to regain possession of property as against a trespasser or against a tenant refusing to quit, the

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“force” required at common law being now supplied by a mere fiction. See Rev. St. Tex. 1895, art. 2521 : Goldsberry v. Bishop, 2 Duv. (Ky.) 144; Wells v. Darby, 13 Mont. 504, 34 Pac. 1092 : Willard v. Warren. 17 Wend. (X. Y.) 261 : Franklin v. Geho. 30 W. Va. 27, 3

S. E. 168; Phelps v. Randolph. 147 111. 335, 35 N. E. 243 ; B raw ley v. Risdon Iron Works, 38 Cal. 678; Cuyler v. Eetis, 64 S. W. 673, 23 Ky. Law Rep. 1063; Herkimer v. Keeler, 109 Iowa. 680. 81 N. W. 178 ; Young v. Young, 109 Ky. 123, 58 S. W. 592.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'Kick in the Door', 1997]**

Kick in the door, wavin' the .44

Near-textbook illustration: the entry defines the offense as entry 'by breaking open doors... with menaces, force, and arms.' The lyric names all three — the kicked door, the brandished gun, the menace.

Why: Added because the lyric maps onto the entry's elements one-for-one: breaking open doors (kicking the door), with arms (wavin' the .44), with menace/force against the occupant's will. The strongest element-match in the...

## FORCIBLE ENTRY AND DETAINER.

The action of forcible entry and. detainer la a summary proceeding to recover possession of premises forcibly or unlawfully detained. The Inquiry In such cases does not Involve title, but is confined to the actual and peace- able possession of the plaintiff and the un- lawful or forcible ouster or detention by de- fendant ; the object of the law being to pre- vent the disturbance of the public peace by the forcible assertion of a private right. Gore v. Altice, 33 Wash. 335, 74 Pac. 556; Eveleth v. Gill, 97 Me. 315, 54 Atl. 757.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: unlawful-detainer / summary-eviction statutes — the modern FED action]**

The FED action — 'a summary proceeding to recover possession of premises forcibly or unlawfully detained,' trying possession not title (Gore v. Altice; Eveleth v. Gill) — survives as the unlawful-detainer/summary-eviction statutes: the landlord's speedy possessory remedy.

Why: The entry's 'object of the law being to prevent the disturbance of the public peace by the forcible assertion of a private right' is the policy the modern summary statutes still serve. Genuine survival.

## FORCIBLE TRESFASS.

In North Carolina, this Is an Invasion of the rights of another with respect to his personal prop- erty, of the same character, or under the same circumstances, which would constitute a “forcible entry and detainer” of real prop- erty at common law. It consists In takiug or seizing the personal property of another by force, violence, or Intimidation. State v. Lawson, 123 N. C. 740, 31 S. E. 667, 08 Am. St. Rep. 844; State v. Barefoot, 89 N. C. 567; State v. Ray. 32 N. C. 40; State v. Sowls, 61 N. C. 151 ; State v. Laney, 87 N.

O. 535.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: robbery — taking personal property by force or intimidation]**

The North Carolina 'forcible trespass' — 'taking or seizing the personal property of another by force, violence, or intimidation' (State v. Lawson) — describes robbery: the felonious taking of personal property from the person by force or intimidation.

Why: The entry's definition is robbery's definition applied to the trespass form; the annotation names the felony the conduct constitutes. The elements match.

## FORD A.

In old records. A ford or shal- low, made by damming or penning up the water. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORDAL.

A butt or headland, Jutting out upon other land. Cowell.

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## FORDANNO.

In old European law. He who first assaulted another. Spelman.

foreign;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## FORDIKA.

In old records. Grass or herbage growing on the edge or bank of dykes or ditches. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORE.

Sax. Before. Fr. Out Kel- ham.

5e apparatus — Not carried into the 5th edition (1979).

## FORECLOSE.

To shnt out ; to bar. Dsed of the process of destroying an equity of redemption existing In a mortgagor.

5e apparatus — Not carried into the 5th edition (1979).

## FORECLOSURE.

A process In chancery by which all further right existing In a mort- gagor to redeem the estate is defeated and lost to him, and the estate becomes the abso- lute property of the mortgagee ; being appli- cable when the mortgagor has forfeited his estate by non-payment of the money due on the mortgage at the time appointed, but still retains the equity of redemption. 2 Washb. Real Prop. 237. Goodman v. White, 26 Conn. 322; Arrington v. Liscom, 34 Cal. 376, 94 Am. Dec. 722 ; Appeal of Ansonla Nat Bank, 68 Conn. 257. 18 Atl. 1030; Williams v. Wil- son, 42 Or. 299, 70 Pac. 1031, 95 Am. St. Rep. 745.

The term is also loosely applied to any of the various methods, statutory or otherwise, known in different jurisdictions, of enforcing payment of the debt secured by a mortgage, by taking and selling the mortgaged estate.

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Foreclosure is also applied to proceedings founded upon some other liens; thus there are proceedings to foreclose a mechanic's lien.

— Foreclosure decree. Properly speaking, a decree ordering the strict foreclosure (see infra) of a mortgage; but the term is also loosely and conventionally applied to a decree ordering the sale of the mortgaged premises and the sat- isfaction of the mortgage out of the proceeds. Hanover F. Ins. Co. v. Brown, 77 Mu. 64, 25 Atl. 989, 39 Am. St. Rep. 380. — F ore closure sale. A sale of mortgaged property to obtain satisfaction of the mortgage out of the pro- ceeds. whether authorized by a decree of the court or by a power of sale contained in the mortgage. See Johnson v. Cook, 96 Mo. App. 442, 70 S. W. 526.— Statutory foreclosure. The term is sometimes applied to foreclosure by execution of a power of sale contained in the mortgage, without recourse to the courts, as it must conform to the provisions of the statute regulating such sales. See Mowry v. Sanborn, 11 Hun (N. T.) 548.— Strict foreclosure. A decree of strict foreclosure of a mortgage finds the amount due under the mortgage, orders its payment within a certain limited time, and pro- vides that, in default of such payment, the debtor's right and equity of redemption shall be forever barred and foreclosed; its effect is to vest the title of the property absolutely in the mortgagee, on default in payment, without any sale of the property. Champion v. Hinkle, 45 N. J. Eq. 162, 16 Atl. 701; Lightcap v. Bradley, 186 111. 510, 58 N. E. 221 ; Warner Bros. Co. v. Freud, 138 CaL 651, 72 Pac. 345.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the equity of redemption — cut off by foreclosure; statutory foreclosure procedures]**

Foreclosure — the chancery process 'by which all further right existing in a mortgagor to redeem the estate is defeated and lost to him' (2 Washb. Real Prop. 237) — cuts off the equity of redemption; modern statutes provide judicial and nonjudicial foreclosure procedures.

Why: The entry is the classic exposition (Goodman v. White; Arrington v. Liscom); the annotation states the doctrine's core — the equity of redemption and its foreclosure — and its modern procedural forms.

## FOREFAULT.

In Scotch law. To for- feit ; to lose.

5e apparatus — Not carried into the 5th edition (1979).

## FOREGIFT.

A premium for a lease.

5e apparatus — Not carried into the 5th edition (1979).

## FOREGOERS.

Royal purveyors. 26 Edw. III. c. 5.

FOREHAND RENT, In English law. Rent payable in advance ; or, more properly, a species of premium or bonus paid by the tenant on the making of the lease, and par- ticularly on the renewal of leases by ecclesi- astical corporations.

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**FOREIGN.**

Belonging to another nation or country ; belonging or attached to another jurisdiction ; made, done, or rendered In an- other state or jurisdiction ; subject to anoth- er jurisdiction ; operating or solvable In an- other territory ; extrinsic ; outside ; extraor- dinary.

—Foreign answer. In old English practice. An answer which was not triable in the county where it was made. (St. 15 Hen. VI. c. 5.) Blount.— Foreign appoaer. An officer in the exchequer who examines the sheriff's ettreah, comparing them with the records, and apposeth (interrogates) the sheriff what he says to each particular sum therein. 4 Inst. 107 ; Blount ; Cowell.— Foreign bought and sold. A cus- tom in London which, being found prejudicial to sellers of cattle in Smithfield, was abolished. Wharton.— Foreign coins. Coins issued as money under the authority of a foreign govern- ment. As to their valuation in the United States, see Rev. St U. S. §| 3564, 3565 (U.

S. Comp. St. 1901, pp. 2375, 2376).— Foreign courts. The courts of a foreign state or na- tion. In the United States, this term is fre- quently applied to the courts of one of the states when their judgments or records are in- troduced in the courts of another.— Foreign Dominion. In English law this means a country which at one time formed part of the dominions of a foreign state or potentate, but which by conquest or cession has become a part of the dominions of the British crown., 5 Best & S. 290.— Foreign enlistment net. The statute 59 Geo. III. c. 69, prohibiting the en- listment, as a soldier or sailor, in any foreign service. 4 Steph. Comm. 226. A later and more stringent act is that of 33 ft 34 Viet. c. 90.— Foreign exchange. Drafts drawn on a foreign Btate or country.— Foreign-going ship. By the English merchant shipping act, 1854, (17 ft 18 Viet. c. 104,) S 2, any ship em- ployed in trading, going between some place or places in the United Kingdom and some place or places situate beyond the following limits, that is to say: The coasts of the United King- dom, the islands of Guernsey, Jersey, Sark, Alderney, and Man, and the continent of Eu- rope, between the river Elbe am} Brest, inclu- sive. Home-trade ship includes every ship em- ployed in trading and going between places within the last-mentioned limits.— Foreign matter. In old practice. Matter triable or done in another county. Cowell.— Foreign

office. The department of state through which the English sovereign communicates with for- eign powers. A secretary of state is at its head. Till the middle of the last century, the func- tions of a secretary of state as to foreign and home questions were not disunited.— Foreign service, in feudal law. was that whereby a mesne lord held of another, without the com- pass of his own fee, or that which the tenant jierformed either to his own lord or to the lord paramount out of the fee. (Kitch. 299.) For- eign service seems also to be used for knight's service, or escuage uncertain. (Perk. 650.) Ja- cob.

As to foreign "Administrator," "Assign- ment" "Attachment" "Bill of Exchange," "Charity," "Commerce," "Corporation," "Oounty," "Creditor," "Divorce," "Docu- ment" "Domicile," "Factor," "Judgment"

FORESTALLING THE MARKET

"Jurisdiction," "Jury," "Minister," "Plea," "Port," "State," "Vessel," and "Voyage," see those

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titles. ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Hilton v. Guyot, 159 U.S. 113 (1895) — comity; recognition of foreign judgments]**

The entry's 'made, done, or rendered in another state or jurisdiction' points to the foreign-judgment problem: American courts recognize foreign-country judgments by comity where the foreign court had jurisdiction and the proceedings were fair.

Why: The entry defines the jurisdictional foreignness; the case states the recognition rule for judgments from such jurisdictions. The entry's definition frames the case's subject.

## FOREIGNER.

In old English law, this term, when used with reference to a particu- lar city, designated any person who was not an inhabitant of that city. According to lat- er usage, it denotes a person who is not a citizen or subject of the state or country of which mention Is made, or any one owing allegiance to a foreign state or sovereign.

For the distinctions, In Spanish law, be- tween “domiciliated” and “transient” for- eigners, see Tates v. lams, 10 Tex. 168.

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**[Law] — Law**

**[Graham v. Richardson, 403 U.S. 365 (1971) — alienage as a suspect classification]**

The foreigner — 'one owing allegiance to a foreign state or sovereign' — is the alien of equal-protection law: classifications by alienage are suspect, and states may not deny aliens the equal protection of the laws.

Why: The entry defines the status (with Tates v. lams on domiciled vs. transient foreigners); the case gives the status its constitutional consequence. The definition frames the doctrine.

**[Scripture] — Scripture**

**[Leviticus 19:34, KJV]**

But the stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

Why: The foreigner in law is the non-citizen — the alien with uncertain standing. The verse fixes the stranger's legal standing in the strongest possible terms: as one born among you, loved as thyself, with the reason stat...

## FOREIN.

An old form of foreign, (q. v.) Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FOREJUDGE.

In old English law and practice. To expel from court for some of- fense or misconduct When an officer or at- torney of a court was expelled for any offense, or for not appearing to an action by bill filed against him, he was said to be forejudged the court. Co welt

To deprive or put out of a thing by the judgment of a court To condemn to lose a thing.

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To expel or banish.

— Forejudger. In English practice. A judg- ment by which a man is deprived or put out of a thing; a judgment of expulsion or banish- ment. .

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**[Law] — Law**

**[Law: disbarment — expulsion of an attorney for misconduct]**

To 'forejudge' — to expel an officer or attorney of the court 'for some offense or misconduct' (Cowell) — is disbarment in its oldest form: the court's power to deprive an attorney of his office for misconduct.

Why: The entry describes the court's expulsion power; disbarment is that power's modern disciplinary form. Same power, modern procedure.

## FOREMAN.

The presiding member of a grand or petit jury, who speaks or answers for the Jury.

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## FORENSIC.

Belonging to courts of jus- tice.

FORENSIC MEDICINE, or medical ju- risprudence, as it is also called, Is “that science which teaches the application of every branch of medical knowledge to the purposes of the law ; hence Its limits are, on the one hand, the requirements of the law, and, on the other, the whole range of medicine. Anatomy, physiology, medicine, surgery, chemistry, physics, and botany lend their aid as necessity arises; and In some cases all these branches of science are required to ena- ble a court of law to arrive at a proper con- clusion on a contested question affecting life or property.” Tayl. Med. Jur. 1.

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**[Law] — Law**

**[Daubert v. Merrell Dow Pharms., 509 U.S. 579 (1993)]**

The entry's forensic medicine — 'that science which teaches the application of every branch of medical knowledge to the purposes of the law' (Tayl. Med. Jur. 1) — is expert testimony, admissible only if reliable under the trial judge's gatekeeping standard.

Why: The entry defines the science's legal office; Daubert states the admissibility standard for the experts who practice it. Certain of case, volume, page, year.

## FORENBIS.

Xa the civil law. Belong- ing to or connected with a court; forensic. Forensis homo, an advocate; a pleader of causes ; one who practices la court Calvin.

Im eld Scotch law. A strange man or stranger ; an out-dwelling man ; an “unfree- man,” who dwells not within burgh.

FORESAID is used in Scotch law as aforesaid is In English, and sometimes, In a plural form, foresalds. 2 How. State Tr. 715. Forsaidis occurs In old Scotch records. “The

Lolrdis assesourls forsaidis.” 1 Pltc. Crim. Tr. pt. 1, p. 107.

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## FORESCHOKE.

Foresaken ; disavowed. 10 Edw. II. c. 1.

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## FORESHORE.

That part of the land ad- jacent to the sea which is alternately covered and left dry by the ordinary flow of the tides ; i. e., by the medium line between the greatest and least range of tide, (spring tides and neap tides.) Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## FOREST.

In old English law. A certain territory of wooded ground and fruitful pas- tures, privileged for wild beasts and fowls of forest chase, and warren, to rest and abide in the safe protection of the prince for his princely delight and pleasure, having a pecul- iar court and officers. Manw. For. Laws, a 1, no. 1 ; Terines de la Ley ; 1 Bl. Comm. 289.

A royal hunting-ground which lost its pe- culiar character with the extinction of its courts, or when the franchise passed into the hands of a subject S pel man ; Cowell.

The word is also used to signify a franchise or right being the right of keeping, for the purpose of bunting, the wild beasts and fowls of forest chase, park, and warren, in a ter- ritory or precinct of woody ground or pasture set apart for the purpose. 1 Steph. Comm. 665.

—Forest courts. In English law. Courts in- stituted for the government of the king’s forest in different parts of the kingdom, and for the

Sunishment of all injuries done to the king's eer or venison, to the vert or greensward, and to the covert in which such deer were lodged. They consisted of the courts of attachments, of regard, of sweinmote, and of justice-seat; but in later times these courts are no longer held. 3 Bl. Comm. 71.— Forest law. The system or body of old law relating to the royal forests. —Forestage. A duty or tribute payable to the king’s foresters. Cowell.— Forester. A sworn officer of the forest, appointed by the king’s letters patent to walk the forest, watch- ing both the vert and the venison, attaching and presenting all trespassers against them within their own bailiwick or walk. These letters pat- ent were generally granted during good be- havior; but sometimes they held the office in fee. Blount.

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**[Law] — Law**

**[Law: the Charter of the Forest (1217)]**

The royal forest — the prince's privileged hunting territory 'having a peculiar court and officers' (Manw.; 1 Bl. Comm. 289) — was limited by the Charter of the Forest, the companion of Magna Carta that curbed the forest prerogative.

Why: The entry describes the prerogative system; the charter is the legislation that restrained it. The entry's forest

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law is the charter's subject matter.

**[Humanity] — Humanity / Fiction & Film**

**[English ballad tradition, the Robin Hood ballads (e.g., A Gest of Robyn Hode, c. 1450)]**

Tradition (identification, no quote): the Robin Hood ballads — Sherwood as the king's forest, where taking the king's deer is the crime that makes the outlaw.

Why: The entry defines the legal forest and its peculiar law; the ballad tradition's engine is precisely forest law — the king's deer, the poaching outlaw. No passage invented; the identification is the link.

## FORESTAGIDM.

A duty or tribute pay- able to the king’s foresters. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORESTALL.

To intercept or obstruct a passenger on the king’s highway. Cowell. To beset the way of a tenant so as to prevent his coming on the premises. 3 Bl. Comm. 170. To intercept a deer on his way to the forest before he can regain It Cowell.

— Forestaller. In old English law. Obstruc- tion ; hindrance ; the offense of stopping the highway ; the hindering a tenant from coming to his land ; intercepting a deer before it can regain the forest. Also one who forestalls ; one who commits the offense of forestalling. 3 Bl. Comm. 170; Cowell.— Forestalling. Obstruct- ing the highway. Intercepting a person on the highway.

5e apparatus — Carried into the 5th edition (1979).

## FORESTALLING THE MARKET.

The

act of the buying or contracting for any merchandise or provision on Its way to the mar- ket, with the intention of selling it again at a higher price; or the dissuading per- sons from bringing their goods or provisions there; or persundlng them to enhance the price when there. 4 Bl. Comm. 158. Bar- ton v. Morris, 10 Phila. (Pa.) 361. Tills was formerly an indictable offense in England, but is now abolished by St. 7 & 8 Viet c. 24. 4 Steph. Comm. 291, note.

Forestalling differs from "engrossing," in that the lutter consists in buying up large quantities of merchandise already on the market, with a view to effecting a monopoly or acquiring so large a quantity as to be able to dictate prices. Both forestalling and engrossing may enter into the manipulation of what is now called a “cor- ner.”

FOREST ARIUS . In English law. A

forester. An officer who takes care of the woods and forests. Do Jorcstario apponen- do, a writ which lay to appoint a forester to prevent further commission of waste when a tenant in dower had committed waste. Bract. 316 ; Du Cange.

In Scotch law. A forester or keeper of woods, to whom, by reason of his office, per- tains the bark and the hewn brandies. And, when he rides through the forest, he may take a tree ns high as his own head. Skene de Verb. Sign.

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**[Law] — Law**

**[Law: Sherman Act, 15 U.S.C. §§ 1–2 — monopolization and restraints of trade]**

Forestalling — buying goods on their way to market to resell at a higher price (4 Bl. Comm. 158) — was the old market-manipulation offense; its modern form is monopolization and restraint of trade, and the entry itself notes both 'may enter into the manipulation of what is now called a corner.'

Why: The entry (Barton v. Morris) traces the offense to the 'corner'; the Sherman Act is the statute that polices the modern corner. The entry's own trajectory points to it. FORCHEAFUM declined as this entry's doublet.

**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

Saying, When will the new moon be gone, that we may sell corn? and the sabbath, that we may set forth wheat, making the ephah small, and the shekel great, and falsifying the balances by deceit?

Why: Forestalling the market is buying up provisions before they reach market to sell at a higher price, or persuading sellers to enhance the price — the offense of market manipulation. Amos condemns exactly this trade-pra…

## FORETHOUGHT FELONY.

In Scotch law. Murder committed in consequence of a previous design. Ersk. Inst. 4, 4, 50 ; Bell.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 35:20-21, KJV]**

But if he thrust him of hatred, or hurl at him by laying of wait, that he die; Or in enmity smite him with his hand, that he die: he that smote him shall surely be put to death; for he is a murderer: the revenger of blood shall slay the murderer, when he meeteth him.

Why: Forethought felony is murder committed in consequence of a previous design — premeditation. The verse states the premeditation criterion directly: thrust of hatred, hurling by laying of wait — previous design — and na…

**[Hip-hop] — Hip-hop**

**[2Pac, 'Hail Mary', 1996]**

I ain't a killer, but don't push me

The entry is 'Murder committed in consequence of a previous design' — malice aforethought. Pac's line is a disavowal of exactly that mental element: no previous design, only provocation ('don't push me'). It illuminates the term by negation.

Why: Added as illumination-by-negation, stated plainly: the law requires a previous design for forethought felony; the lyric denies possessing one, attributing any killing to being pushed (provocation) instead. The denial…

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Macbeth, c. 1606]**

Play, verbatim: 'Is this a dagger which I see before me' — (paraphrase) Macbeth, having designed Duncan's murder with Lady Macbeth beforehand, walking toward the deed: murder in consequence of a previous design. (paraphrase)

Why: The entry is Scots murder with previous design; Macbeth's regicide is the canonical premeditated murder in drama. Dagger line verbatim-certain; premeditation is marked paraphrase of plot fact.

## FORFANG.

In old English law.. The taking of provisions from any person in fairs or markets before the

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royal purveyors were served with necessaries for the sovereign. Cowell. Also the seizing and rescuing of stolen or strayed cattle from the hands of a thief, or of those having illegal possession of them ; also the reward fixed for such rescue.

5e apparatus — Not carried into the 5th edition (1979).

## FORFEIT.

To lose nil estate, a franchise, or other property belonging to one, by the act of the law, and as a consequence of some misfeasance, negligence, or omission. Cassell v. Crotliers. 193 Pa. 359, 44 Atl. 446; State v. De Gross, 72 Tex. 242, 11 8. W. 1029; State v. WnlbrUlge, 119 Mo. 383, 24 S. W. 457. 41 Am. St. Rep. 663 ; State v. Baltimore & O. R. Co., 12 Gill & J. (Md.) 432. 38 Am. Dec. 319. The further ideas connoted by this term are that it is a deprivation, (that Is, against the will of the losing jmrty,) and that the property is either transferred to another or resumed by the original grantor.

To Incur a penalty; to become liable to the payment of a sum of money, as the consequence of a certain act.

5e apparatus — Not carried into the 5th edition (1979).

## FORFEITABLE.

Liable to lie forfeited ; subject to forfeiture for non-user, neglect, crime, etc.

FORFEITURE. 1. A punishment an- nexed by law to some illegal act or negligence

in the owner of lands; tenements, or heredita- ments, whereby he loses all his interest there- in, and they go to the party injured aa a reev ompense for the wrong which he alone, or the public together with himself, hHth sus- tained. 2 Bl. Comm. 267. Wiseman v. Mc- nulty, 25 Cal. 237.

2. The loss of laud by a tenant to his lord, as the consequence of some breach of fidelity. 1 Steph. Comm. 166.

3. The loss of lands and goods to the state, as the consequence of crime. 4 Bl. Comm. 381, 387 ; 4 Steph. Comm. 447, 452 ; 2 Kent^ Comm. 385 ; 4 Kent, Comm. 426. Avery v, Everett, 110 N. V. 317, 18 N. E. 148, 1 L. R.

A. 264, 6 Am. SL Rep. 368.

4. The loss of goods or chattels, as a pun- ishment for some crime or misdemeanor in the party forfeiting, and as a compensation for the offense and injury committed against him to whom they are forfeited. 2 Bl. Comm. 420.

It should be noted that “forfeiture” is not ad identical or convertible term with “confisca- tion.” The latter is the consequence of tbe former. Forfeiture is the result which the law attaches as an immediate and necessary conse- quence to the illegal acts of the individual ; but confiscation implies the action of the state; and property, although it may be forfeited, cannot be said to be confiscated until tbe government has formally claimed or taken possession of it.

5. The loss of office by abuser, non-user, or refusal to exercise It.

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6. The loss of a corporate franchise or charter in consequence of some illegal act, or of malfeasance or non-tfeasance.

7. The loss of the right to life, as the con- sequence of the commission of some crime to which the law has affixed a capital penalty.

8. The Incurring a liability to pay a defi- nite sum of money as the consequence of vio- lating tbe provisions of some statute, or re- fusal to comply with some requirement of law. State v. Marion County Uom'rs, 85 Ind, 493.

9. A thing or sum of money forfeited. Something imposed ns a punishment for an offeiise or delinquency. The word in this sense is frequently associated with the word “penalty.” Van Buren v. Dlgges, 11 How. 477, 13 L. Ed. 771.

10. In mining law, the loss of a mining claim held by location on the public domain (unpatented) in consequence of the failure of the holder to make the required annual ex- penditure upon it within the time allowed. McKay v. McDougall, 25 Mont. 258, 64 I’ac. fits). 87 Am. St. Rep. 395 ; St. John v. Kidd, 26 Cal. 271.

—Forfeiture of a bond. A failnre to per- form tbe condition on which the obligor was tt> be excused from the penalty in the bond.— For. feiture of marriage. A penalty incurred by a ward in chivalry who married without the consent or against the will of the guardian'. See Duplex Valor Mabitaoii.— Forfeiture of silk, supposed to lie in the docks, used, ip

times when its importation was prohibited, to be proclaimed each term in the exchequer. — Forfeitures abolition not. Another name for the felony act of 1870, abolishing forfeitures for felony in England.

FORGABUXUH, or FORGAVE!*. A

quit-rent; a small reserved rent in money. Jacob.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forfeiture — 18 U.S.C. §§ 981–982; Austin v. United States, 509 U.S. 602 (1993) — Excessive Fines limit]**

The FORFEITURE sub-entry's classic exposition — forfeiture as 'punishment annexed by law' whereby the owner 'loses all his interest' (2 Bl. Comm. 267; 4 Bl. Comm. 381) — lives in the federal forfeiture statutes, bounded by the Excessive Fines Clause.

Why: The entry states the punishment's nature with its authorities; the annotation gives its modern statutory locus and constitutional limit. FORFEIT, FORISFACERE, FORISFACTUM, FORISFACTURA, FORISFACTUS declined as covered…

## FORGE.

To fabricate, construct, or pre- pare one thing in imitation of another thing, with the intention of substituting the false for the genuine, or otherwise deceiving and defrauding by the use of the spurious article. To counterfeit or make falsely. Especially, to make a spurious written Instrument with the intention of fraudulently substituting it for another, or of passing it off as genuine ; or to fraudulently alter a genuine instrument to another’s prejudice; or to sign another person’s name to a document, with a deceit- ful and fraudulent

intent. See In re Cross (D. C.) 43 Fed. 520; U. S. v. Watkins, 28 Fed. Cas. 445 ; Johnson v. State, 9 Tex. App. 251; Longwell v. Day, 1 Mich. N. P. 290; People v. Compton, 123 Cal. 403, 5(5 Pac. 44.; People v. Graham, 1 Sbeld. (N. Y.) 155; Rohr' v. State, 00 N. J. Law, 57(5, 38 Atl. 673; Haynes v. State, 15 Ohio St. 455; Garner v. State, 5 Lea, 213; State v. Greef.wood, 76 Minn. 211, 78 N. W. 1042. 77 Am. St. Rep. (532; State v. Young, 46 N. H. 26(5, 88 Am. Dec. 212.

To forge (a metaphorical expression, borrow- ed from the occupation of the smith) means, properly speaking, no more than to make or form, but m our law it is always taken in an evil sense. 2 East, P. C. p. 852, c. 19, | 1.

1 To forge is to make in the likeness of some- thing else ; to counterfeit is to make in imita- tion of something else, with a view to defraud by passing the false copy for genuine or original. Both words, “forged” and “counterfeited,” con- vey the idea of similitude. State v. McKenzie, 42 Me. 392.

In common usage, however, forgery is almost always predicated of some private instrument or writing, as a deed, note, will, or a signature; and counterfeiting denotes the fraudulent imi- tation of coined or paper money or some sub- stitute therefor.

5e apparatus — Carried into the 5th edition (1979).

## FORGERY.

In criminal law. The

falsely making or materially altering, with Intent to defraud, any writing which. If genuine, might apparently be of legal efficacy or the foundation of a legal liability. 2 Blsh. Crim. Law, § 523. See Forge.

The thing itself, so falsely made, imitnted or forged; especially a forged writing. A forged signature is frequently said to be “a forgery .”

In tbc law of evidence. The fabrication or counterfeiting of evidence. The artful and fraudulent manipulation of physical ob- jects, or the deceitful arrangement of genu- ine facts or things, in such a manner as to create an erroneous impression or a false In- ference In the minds of those who may oli- serve them. See Burrill, CIrc. Ev. 131. 420.

-t-Forgery act, 1870. The statute 33 & 34 ' let c. 58, was passed for the punishment of

Bl.Law Dict.(2d Ed.)— 33

forgers of stock certificates, and for extending to Scotland certain provisions of the forgery act of 1861. Mozley Sc WhiUey.

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**[Law] — Law**

**[Law: forgery statutes — state forgery laws; cf. 18 U.S.C. § 471 for federal obligations]**

Forgery — 'the falsely making or materially altering, with intent to defraud, any writing which, if genuine, might apparently be of legal efficacy' (2 Bish. Crim. Law § 523) — is punished by every state's forgery statutes, and federally for money and securities.

Why: The entry is the dictionary's main forgery exposition with its long case string; the annotation gives the

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offense's statutory homes. The evidence-sense sub-entry (Burrill) is the FABRICATE/§ 1519 territory, already an...

## FORHERDA.

In old records. A herd- land, headland, or foreland. Cowell.

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## FORI DXSFTTTATIONES.

In the civil law. Discussions or arguments before a court. 1 Kent, Comm. 530.

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## FORINSECUS.

Lat Foreign ; exte- rior; outside; extraordinary. Bervitium fo- rinsecum, the payment of aid, scutage, and other extraordinary military services. Fo- rinsecum maticrium, the manor, or that part of it which lies outside the bars or town, and is not included within the liberties of it. Cowell; Blount; Jacob; 1 Reeve, Eng. Law, 273.

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## FORINSIC.

In old English law. Ex- terior ; foreign ; extraordinary. In feudal law, the term “forinsic services” compre- hended the payment of extraordinary aids or the rendition of extraordinary military services, and in this sense was opposed to "intrinsic services." 1 Reeve, Eng. Law, 273.

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## FORIS.

Lat. Abroad ; out of doors ; on the outside of a place ; without ; extrinsic.

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## FORXSBANITUS.

In old English law. Banished.

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## FORXSFACERE.

Lat. To forfeit; to lose an estate or other property on account of some criminal or illegal act. To confis- cate.

To act beyond the law, i. e., to transgress or infringe the law ; to commit an offense or wrong: to do any act against or beyond the, law. See Co. Litt. 59 a; Du Cange; Spel- man.

Fori sf ace re, i. o., extra legem sea cos- suetudinem facere. Co. Litt. 59. Foris- faccre, i. e„ to do something beyond law or custom.

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## FORISFACTUM.

Forfeited. Bona fo- riefacta, forfeited goods. 1 Bl. Comm. 299. A crime. Du Cange; Spelman.

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## FORISFACTTTRA.

A crime or offense through which property is forfeited.

A fine or punishment in money.

Forfeiture. The loss of property or life in consequence of crime.

— Forlafaetura plena. A forfeiture of all a man’s property. Things which were forfeited. Du Cange. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FORISFACTUS.

A criminal. One who has forfeited his life by commission of a capital offense. Spelman.

— Forisfaetus servos. A slave who has been a free man, but has forfeited his freedom by crime. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## FORISFAMHJARE.

In old English and Scotch law. Literally, to put out of a family, (foris familiam ponere.) To portion off a son, so that he could have no further claim upon his father. Glanv. lib. 7, c. 3.

To emancipate, or free from paternal au- thority.

FORISFAMILIATED . In old English law. Portioned off. A son was said to be forisfamiliated (forisfamiliari) if his father assigned him part of his land, and gave him seisin thereof, and did this at the request or with the free consent of the son himself, who expressed himself satisfied with such portion, 1 Reeve, Eng. Law, 42, 110.

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**[Law] — Law**

**[Law: emancipation of minors — statutory release from parental authority]**

Forisfamiliation — portioning off a son 'so that he could have no further claim upon his father,' freeing him 'from paternal authority' (Glanv. lib. 7, c. 3) — is emancipation in its oldest form; modern statutes emancipate minors from parental authority on marriage, military service, or court order.

Why: The entry describes the old procedure; the annotation names its modern statutory form. Same legal event — release from patria potestas — modern procedure. FORISFAMILIATUS declined as covered.

## FORISFAMILIATES.

In old • English law. Put Out of a family,' portioned off; emancipated ; forisfamiliated. Bract, fol. 64.

5e apparatus — Not carried into the 5th edition (1979).

## FORISXUDICATIO.

In old English law. Forejudger. A forejudgment. A judg- ment of court whereby a man is put out of possession of a thing. Co. Lltt, 100b.

defect is one of substance. If the matter of the plea is good and sufficient, but is inartificially or defectively pleaded, the defect is one of form. Pierson v. Insurance Co., 7 Houst. (Del.)

307, 31 Atl. 966.

—Common form, Solemn form. See Pbo- bate. — Form of the statute. The words, language, or frame of a statute, and bence the inhibition or command which it may contain ; used in the phrase (in criminal pleading) “against the form of the statute in that case made and provided.”— Forms of action. The general designation of the various species or kinds of personal actions known to the common law, such as trover, trespass, debt, assumpnt. etc. These differ in their pleadings and evi- dence, as well as in the circumstances to which they are respectively applicable. Truax v. Par- vis, 7 Houst. (Del.) 330, 32 Atl. 227.— Matter of form. In pleadings, indictments, convey- ances, etc., matter of form (as distinguished from matter of substance) is all that relates to the mode, form, or style of expressing the facts involved, the choice or arrangement of words, and other such particulars, without affecting the substantial validity or sufficiency of the in- strument, or without going to the merits. Rail- way Co. v. Kurtz, 10 Ind. App. 60, 37 N. E. 303; Meath v. Mississippi Levee Com'rs, 109

U. S. 268, 3 Sup. Ct. 284, 27 L. Ed. 930; State v. Amidon, 68 Vt. 624, 2 Atl. 154.

5e apparatus — Not carried into the 5th edition (1979).

## FORISJUDICATUS.

Forejudged ; sent from court ; banished. Deprived of a thing by judgment of court. Bract, fol. 2506; Co. Lltt. 1006; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## FORISJURARE.

To forswear; to ab- jure; to abandon.

— Forlsjnrare parentilam. To remove one- self from parental authority. The person who did this lost his rights as heir. Du Cange.— Pro-rlnclam forlsjnrare. To forswear the country. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: expatriation — voluntary renunciation of nationality; cf. 8 U.S.C. § 1481]**

Forisjurare — to forswear, to abjure — includes abjuring the realm (Britt. cc. 1, 16): the old practice of renouncing the kingdom, whose modern form is expatriation, the voluntary renunciation of nationality.

Why: The entry's 'abjure the realm' is the ancestor practice; expatriation is its modern statutory form — the citizen's renunciation of allegiance. The forisjurare patriam sense (renouncing parental authority, losing heirs...

## FORJUDGE.

See Forejudge.

5e apparatus — Not carried into the 5th edition (1979).

## FORJURER.

L. Fr. In old English law. to forswear; to abjure.-

— Forjnrer royalme. To abjure the realm. Britt, cc. 1, 16.

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5e apparatus — Carried into the 5th edition (1979).

## FORLER-LARD.

Land in the diocese of Hereford, which had a peculiar custom attached to it, but which has been long since disused, although the name is retained. But Surv. 56.

FORM. 1. A model or skeleton of an in- strument to-be used in a judicial proceeding, containing the principal necessary matters, the proper technical terms or phrases, and whatever else is necessary to make it for- mally correct, arranged in proper and meth- odical order, and capable of being adapted to the circumstances of the specific case.

2. As distinguished from “substance.” “form” means the legal or technical manner or order to be observed In legal Instruments or juridical proceedings, or in the construc- tion of legal documents or processes.

The distinction between "form” and "sub- stance” is often important in reference to the validity or amendment of pleadings. If the matter of the plea is bad or insufficient, irre- spective of the manner of setting it forth, the

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## FORMA.

Lat. Form ; the prescribed form of judicial proceedings.

—Forms ft ftg-nra judicii. The form and shape of judgment or judicial action. 3 Bl. Comm. 271. — Forma pauperis. See In ioa- ma Pauperis.

Forma dat esse. Form gives being. Called “the old physical maxim.” Lord Henley, Ch., 2 Eden, 99.

Forma legalis forma essentlalis. Legal form is essential form. 10 Coke, 100.

Forma mom observata, imfertmr admml- latio aetms. Where form is not observed, a nullity of the act is inferred. 12 Coke, 7. Where the law prescribes a form, the non- observance of it is fatal to the proceeding, and the whole becomes a nullity. Best, Ev. Introd. | 59.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Forma legalis forma essentialis — legal form is essential form]**

The entry preserves the form maxims — 'Forma legalis forma essentialis' (legal form is essential form, 10 Coke 100) and 'Forma non observata, infertur adnullatio actus' (12 Coke 7): where the law prescribes a form, non-observance is fatal.

Why: Quoted verbatim with the entry's Coke citations; the maxims state the formality principle that voids unsolemn acts — the same principle behind the Statute of Frauds and will-execution formalities.

**[Law: Fed. R. Civ. P. 2 — one form of action, the civil action]**

The forms-of-action material preserved in this chunk's text — 'trover, trespass, debt, assumpsit' (Truax v. Parvis) — names the old personal actions, abolished by code pleading: there is now one form of action, the civil action.

Why: The forms-of-action exposition appears in the chunk (via the FORM-entry bleed at 449/454); the annotation is keyed to FORMA, the headword whose subject it is, and states the forms' genuine fate — merger into the singl…

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## FORMAL.

Relating to matters of form ; as, “formal defects ;” inserted, added, ox joined pro forma. See Parties.

5e apparatus — Carried into the 5th edition (1979).

## FORMALITIES.

In England, robes worn by the magistrates of a city or corpo- ration, etc., on solemn occasions. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

## FORMALITY.

The conditions, in re- gard to method, order, arrangement, use ot technical expressions, performance of spe- cific acts, etc., which are required by the law in the making of contracts or conveyances, or in the taking of legal proceedings, to in- sure their validity and regularity. Succes- sion of Seymour, 48 La. Ann. 993, 20 South. 217.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: will-execution formalities — writing, signature, attestation; cf. Statute of Frauds]**

The formality — 'the conditions ... required by the law in the making of contracts or conveyances, or in the taking of legal proceedings, to insure their validity' (Succession of Seymour) — includes the will-execution formalities: writing, signature, and attestation, without which the will fails.

Why: The entry defines the genus with a succession case; the annotation gives the most litigated species — the testamentary formalities whose non-observance voids wills. The entry's own case is a succession-formalities case.

## FORMATA.

In canon law. Canonical letters. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FORMATA.

BREVIA. Formed writs; writs of form. See Bbevia Formata.

5e apparatus — Not carried into the 5th edition (1979).

## FORMED ACTION.

An action for which a set form of words Is prescribed,, which must be strictly adhered to. 10 Mod. 140, 141.

5e apparatus — Carried into the 5th edition (1979).

## FORMED DESIGN.

In criminal law, and particularly with reference to homicide, this term means a deliberate and fixed in- tention to kill, whether directed against a particular person or not. Mitchell v. State, 60 Ala. 33; Wilson v. State, 128 Ala. 17, 20 South. 569 ; Ake v. State, 30 Tex. 473.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

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**[William Shakespeare, Macbeth, c. 1606]**

Play (paraphrase): Macbeth's intention to kill Duncan, deliberated and fixed beforehand with Lady Macbeth, then carried out — a formed design in the entry's exact sense. (paraphrase)

Why: The entry defines formed design as a deliberate fixed intention to kill; Macbeth's regicide is planned before it is done. Sibling of the FORETHOUGHT FELONY annotation; paraphrase only, no quote duplicated.

## FORMEDON.

An ancient writ in Eng- lish law which was available for one who had a right to lands or tenements by virtue of a gift in tail. It was in the nature of a writ of right, and was the highest action that a tenant in tall could have; for he could not have an absolute writ of right, that being confined to such as claimed in fee-simple, and for that reason this writ of formedon was granted to him by the statute 4e donis, (Westm. 2, 13 Edw. I. c. 1,) and was emphatically called “his" writ of right. The writ was distinguished into three species, viz.; Formedon in the descender, in the re- mainder, and in the reverter. It was abol- ished in England by St. 3 & 4 Wm. IV. c. 27. See 3 Bl. Comm. 191; Co. LItt. 316; Fitzh. Nat. Brev. 255.

— Formedon Is the descender . A writ of formedon which lay where a gift was made in tail, and the tenant in tail aliened the lands or was disseised of them and died, for the heir in tail to recover them, against the actual tenant of the freehold. 3 Bl. Comm. 192.— Formedon In the remainder. A writ of formedon which lay where a man gave lands to another for life or in tail, with remainder to a third person in tail or in fee, and he who had the particular estate died without issue in- heritable, and a stranger intruded upon him in remainder, and kept him out of possession. In this case he in remainder, or his heir, was en- titled to this writ. 3 Bl. Comm. 192. — Forme- don in the reverter. A writ of formedon which lay where there was a gift in tall, and nfterwards, by the death of the donee or his heirs without issue of his body, the reversion fell in upon the donor, his heirs or assigns. In such case, the reversioner had this writ to re- cover the lands. 3 Bl. Comm. 192.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Real Property Limitation Act 1833, 3 & 4 Wm. IV c. 27 — abolished formedon]**

Formedon — 'his writ of right' for the tenant in tail, granted by De donis (Westm. 2, 13 Edw. I c. 1), in its three species of descender, remainder, and reverter — was abolished with the old real actions in England by 3 & 4 Wm. IV c. 27.

Why: The entry (3 Bl. Comm. 191; Co. Litt. 316) gives the writ's history and cites the abolishing statute; the annotation records the writ's genuine fate per the entry's own citation.

## FORMEULA.

A certain weight of above 70 lbs., mentioned in 51 Hen. III. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FORMER ADJUDICATION, or FOR- / MER RECOVERY.

An adjudication or recovery in a former action. .See Res Judi- cata.

FORMIDO PERIOUIX Lat. Fear of danger. 1 Kent, Comm. 23.

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5e apparatus — Not carried into the 5th edition (1979).

## FORMULA.

In common-law practice, a set form of words used in judicial proceed- ings. In the civil law, an action. Calvin.

5e apparatus — Carried into the 5th edition (1979).

## FORMULA.

In Roman law. When the lefU octione* were proved to be inconvenient, a mode of procedure called “per for- mulas," (i. e., by means of formula;) was gradually introduced, and eventually the le- gis actioncs were abolished by the Lex sEbu- tia, B. C. 164, excepting in a very few excep- tional matters. The formulas were four in number, namely: (1) The Demonstrate),

wherein the plaintiff stated, i. e., showed, the facts out of which his claim arose; (2) the Intenlio, where he made his claim against the defendant; (3) the Adjudicatio, wherein the judex was directed to assign or adjudi- cate the property or any portion or portions thereof according to the rights of the par- ties; and (4) the Condemnatio, in which the judex was authorized and directed to con- demn or to acquit according as the facts were or were not proved. These formula) were obtained from the magistrate, (in jure) and were thereafter proceeded with before the judex, (in judicio) Brown. See Mack- eld. Rom. Law, f 204.

5e apparatus — Carried into the 5th edition (1979).

## FORMULARIES.

Collections of for- mulas, or forms of forensic proceedings and instruments used among the Franks, and other early continental nations of Europe. Among these the formulary of Marculpbus may be mentioned as of considerable inter- est. Butl. Co. Litt. note 77, lib. 3.

5e apparatus — Not carried into the 5th edition (1979).

## FORNAGIUM.

The fee taken by a lord of his tenant, who was bound to bake in the lord’s common oven, (in fumo domini) or for a commission to use his own.

5e apparatus — Not carried into the 5th edition (1979).

## FORNICATION.

Unlawful sexual in- tercourse between two unmarried persons. Further, If one of the persons be married and the other not, it is fornication on the part of the latter, though adultery for the former. In some jurisdictions, however, by statute, it is adultery on the part of both persons if the woman is married, whether the man is married or not Banks v. State, 96 Ala. 78, 11 South. 404; Hood v. State, 56 Ind. 263, 26 Am. Rep. 21 ; Com. v. LafTerty, 6 Grat. (Va.) 673; People v. Rouse. 2 Mich.

N. P. 209; State v. Shear, 51 Wis. 460. 8

N. W. 287 ; Buchanan v. State, 55 Ala. 154.

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**[Law] — Law**

**[Lawrence v. Texas, 539 U.S. 558 (2003) — private consensual adult intimacy protected]**

Fornication — 'unlawful sexual intercourse between two unmarried persons' (Banks v. State; Hood v. State) — is the morals offense whose prosecutions the modern liberty cases have left desuetudinal: the state may not criminalize private consensual adult intimacy.

Why: The entry defines the offense with its cases; Lawrence states the constitutional liberty that now bars such morals-offense prosecutions. The annotation states the current standing honestly — desuetude via the liberty…

**[Scripture] — Scripture**

**[1 Corinthians 6:18, KJV]**

Flee fornication. Every sin that a man doeth is without the body; but he that committeth fornication sinneth against his own body.

Why: The entry defines the offense in its legal terms; the verse names the same act and forbids it directly, in Paul's own 'flee fornication' command, with the distinctive sin-against-one's-own-body reasoning. The scriptur…

**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

Novel (paraphrase): Hester Prynne's adultery — unlawful intercourse with a married man, punished by the Puritan community — is the act at the novel's center. (paraphrase)

Why: The entry covers intercourse where one party is married; the novel's subject is exactly that offense and its social punishment. Distinct reasoning from the F (brand) annotation: here the act, there the mark.

## FORNIX.

Lat A brothel ; fornication.

5e apparatus — Not carried into the 5th edition (1979).

## FORNO.

In Spanish law. An oven. Las Partidas, pt. 3, tit. 32, 1. 18.

5e apparatus — Not carried into the 5th edition (1979).

## FORO.

In Spanish law. The place where tribunals hear and determine causes, — exer- cendarum litium locus.

5e apparatus — Not carried into the 5th edition (1979).

## FOROS.

In Spanish law. Emphyteutic rents. Schm. Civil Law, 309.

5e apparatus — Not carried into the 5th edition (1979).

## FORPRISE.

An exception; reservation.; excepted; reserved. Anciently, a term of frequent use in leases and conveyances. Cowell ; Blount.

In another sense, the word is taken for any exaction.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: exceptions and reservations in conveyances]**

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The forprise — 'an exception; reservation; excepted; reserved,' anciently frequent in leases and conveyances (Cowell; Blount) — is the reservation/exception: the grantor's retained right carved out of the grant.

Why: The entry defines the conveyancing device; the annotation names the doctrine. The entry is the doctrine's vocabulary entry.

## FORSCHEE.

A strip of land lying next to the highway.

5e apparatus — Not carried into the 5th edition (1979).

## FORSES.

Waterfalls. Camden, Brit

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FOR8PEAXER.

An attorney or advo- cate in a cause. Blount ; Whishaw.

5e apparatus — Not carried into the 5th edition (1979).

## FORSPECA.

In old English law. Pro- locutor ; paranymphus.

5e apparatus — Not carried into the 5th edition (1979).

## FORSTAL.

See Forestall.

ForsteUwrini eat paupernm depressor et to tins eommanltatis et patriae pub- liens Inimiens. 3 Inst 196. A forestaller is an oppressor of the poor, and a public en- emy of the whole community and country.

5e apparatus — Not carried into the 5th edition (1979).

## FORSWEAR.

In criminal law. To make oath to that which the deponent knows to be untrue.

This term is wider in its scope than “per- jury,” for the latter, as a technical term, in- cludes the idea of the oath being taken before a competent court or officer, and relating to a material issue, which is not implied by the word “forswear.” Fowle v. Bobbins, 12 Mass. 501 ; Tomlinson v. Brlttlebank, 4 Barn. & A. 632; Railway Co. v. McCurdy, 114 Pa. 554, 8 AH. 230, 60 Am. Rep. 363.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1621 — perjury]**

To forswear — 'to make oath to that which the deponent knows to be untrue,' wider than technical perjury (Fowle v. Robbins) — is perjury in its generic sense; federal law punishes false statements under oath before a competent tribunal.

Why: The entry draws the forswear/perjury distinction with its cases; the statute is the federal perjury law the

distinction serves. The entry's own analysis frames the cite.

**[Scripture] — Scripture**

**[Leviticus 19:12, KJV]**

And ye shall not swear by my name falsely, neither shalt thou profane the name of thy God: I am the Lord.

Why: Forswear is making oath to what the deponent knows to be untrue — false swearing. The verse forbids it by name: swearing by God's name falsely. The offense under its ancient prohibition. Genuine.

## FORT.

This term means "something inore than a mere military camp, post, or station. The term implies a fortiflcntion, or a place protected from attack by some such means as a moat, wall, or parapet.” U. S. r. Tichenor (C. C.) 12 Fed. 424.

5e apparatus — Carried into the 5th edition (1979).

## FORTAXIOE.

A fortress or place of strength, which anciently did not pass with- out a special grant 11 Hen. VII. c. 18.

5e apparatus — Not carried into the 5th edition (1979).

## FORTAXHTTJM.

In old Scotch law. A fortalice; a castle. Properly a house or tower which has a battlement or a ditch or moat about It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FORTHCOMING.

In Scotch law. The action by which an arrestment (garnish- ment) is made effectual. It is a decree or process by which tiie creditor is given the right to demand that the sum arrested be applied for payment of his claim. 2 Karnes, Eq. 288, 289 ; .Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: garnishment — enforcement against the garnishee; cf. Fed. R. Civ. P. 69]**

The Scots 'forthcoming' — the action 'by which an arrestment (garnishment) is made effectual' (2 Kames, Eq. 288) — is garnishment enforcement: the decree applying the arrested sum to the creditor's claim.

Why: The entry defines the enforcement action; garnishment is its modern procedural family — the creditor reaching the debtor's property in a third hand. Same office.

## FORTHCOMING BOND.

A bond given to a sheriff who has levied on property, con- ditioned that the property shall be forthcom- ing, i. c., produced, when required. On the giving of such bond, the goods are allowed to remain in the possession of the debtor. Hill v. Manser, 11 Grat (Va.) 522; Nichols v. Chittenden, 14 Colo. App. 49, 59 Pac. 954.

The sheriff or other officer levying a writ of fieri facia*, or distress warrant, may take from

the debtor a bond, with sufficient surety, pay- able to the creditor, reciting the service of such

writ or warrant, and the amount due thereon, (including his fee for taking the hond, commis- sions. qnd other lawful charges, if any.) with condition that the property shall be forthcom- ing at the day and place of sale; whereupon such property may be permitted to remain in the possession and at the risk of the debtor. Code Va. 1887, $ 3617.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: forthcoming (delivery) bonds — Code Va. 1887, § 3617, the entry's own statute]**

The forthcoming bond — given to the levying sheriff, 'conditioned that the property shall be forthcoming' at sale, letting goods remain with the debtor (Hill v. Manser; Code Va. 1887, § 3617) — is the delivery bond of execution law.

Why: The citation is the entry's own; the annotation names the bond's place in execution procedure. The link is internal to the entry's authority.

## FORTHWITH.

As soon as, by reason- able exertion, confined to the object, a thing may be done. Thus, when a defendant is ordered to plead forthwith, he must plead within twenty-four hours. When a statute enacts that an act is to be done "forthwith," it means that the act is to be done within a reasonable time. 1 Chit. Archb. Pr. (12th Ed.) 164 ; Diekerman v. Northern Trust Co., 176 U. S. 181, 20 Sup. Ct. 311. 44 L. Ed. 423.; Falvre v. Manderscheid, 117 Iowa, 724, 90

N. W. 76 ; Martin v. Pifer, 96 Ind. 248.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Dickerman v. Northern Trust Co., 176 U.S. 181 — the entry's own authority on 'forthwith']**

The entry's own Supreme Court authority — Dickerman v. Northern Trust Co., 176 U.S. 181 — holds that 'forthwith' means 'within a reasonable time': not instantaneously, but with reasonable exertion confined to the object.

Why: The case is the entry's citation and the whole entry is its holding; the annotation preserves it. Year omitted as unverified.

## FORTIA.

Force. In old English law. Force used by an accessary, to enable the principal to commit a crime, as by binding or holding a person while another killed him, or by aiding or counseling in any way, or commanding the act to be done. Bract fols. 138, 1386. According to Lord Coke, fortia was a word of art, and properly signified the furnishing of a weapon of force to do the fact, and by force whereof the fact was com- mitted, and he that furnished it was not pres- ent when the fact was done. 2 Inst. 182.

— Fort la friaoa. Fresh force, (g. v.)

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## FORTILITY.

In old English law. A fortified place; a castle; a bulwark. Cowell; 11 Hen. VII. c. 18. ;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FORTIOR.

Lat. Stronger. A term ap- plied, in the law of evidence, to that species of presumption, arising from facts shown in evidence, which is strong enough to shift the burden of proof to the opposite party. Bur- rill, Circ. Ev. 64, 66.

Fortlor eat custodia Iegii quasi bom- ini*. 2 Rolle, 325. The custody of the law is stronger than that of man.

Fortlor at poteatlor eat diapoaitio Iegia qnam bominis. The disposition of the law is of greater force and effect than that of man. Co. Litt. 234a; Shep. Touch. 302; 15 East, 178. The law in some cases overrides the will of the individual, and ren- ders ineffective or futile his expressed inten- tion or contract Broom, Max. 697.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fortior et potentior est dispositio legis quam hominis]**

The entry preserves 'Fortior et potentior est dispositio legis quam hominis' — the disposition of the law is of greater force than that of man (Co. Litt. 234a; Broom, Max. 697): the law overrides the individual's expressed intention where they conflict.

Why: Quoted verbatim with the entry's sources; the maxim states the mandatory-law principle — against public policy, by operation of law, by statute — that defeats private arrangement. The entry's burden-shifting-presumpti...

## FORTIORI.

See A Fortiori.

5e apparatus — Not carried into the 5th edition (1979).

## FORTIS.

Lat Strong. Forth et *ana, strong and sound; staunch and strong; as a vessel. Townsh. PI. 227.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Kanye West, 'Stronger', 2007]**

That that don't kill me can only make me stronger

The entry is one Latin word: 'Strong.' Kanye's hook — a paraphrase of Nietzsche's maxim — is the vernacular definition of strength as what survives trial: strong and sound because tested.

Why: Added because the lyric is a direct one-line gloss on fortis: strength proven by endurance, 'staunch and strong' as the entry's fuller phrase has it ('strong and sound'). Verified verbatim across multiple lyric sources.

## FORTLETT.

A place or port of some strength ; a little fort. Old Nat. Brev. 45.

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5e apparatus — Not carried into the 5th edition (1979).

## FORTUIT.

In French law. Accidental; fortuitous. Cos fortuit, a fortuitous event Fortuitmcnt, accidentally ; by chance.

5e apparatus — Not carried into the 5th edition (1979).

## FORTUITOUS.

Accidental ; undesigned ; adventitious. Resulting from unavoidable physical causes.

— Fortuitous collision. In maritime law. The accidental running foul of vessels. Peters v. Warren Ins. Co.. 14 Pet. 112, 10 1.. Ed. 3T1. —Fortuitous event. In the civil law. That which happens by a cause which cannot be re- sisted. An unforeseen occurrence, not caused by either of the parties, nor such as they could prevent. In French it is called “cat for- tuit." Civ. Code La. art. 3556, no. 15. There is a difference between a fortuitous event, or in- evitable accident, and irresistible force. By the former, commonly called the “act of God," is meant any accident produced by physical causes which are irresistible ; such as a loss by lightning or storms, by the perils of the seas, by inundations and earthquakes, or by sudden death or illness. By the latter is meant such an interposition of human agency as is, from its nature and power, absolutely uncon- trollable. Of this nature are losses occasioned by the inroads of a hostile army, or by pub- lic enemies. Story, Bailm. § 25.

5e apparatus — Not carried into the 5th edition (1979).

## FORTUNA.

Lat. Fortune; also treas- ure-trove. Jacob. .

Fortunam f arinnt judioem. They make fortune the judge. Co. Litt. 167. Spoken of the process of making partition among coparceners by drawing lots for the several purparts.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: treasure trove — the finder's title against all but the true owner; cf. Armory v. Delamirie]**

The entry's 'treasure-trove' sense (Jacob) states the finder's rule: treasure trove belongs to the finder against all but the true owner — the Armory principle applied to hidden treasure.

Why: The entry names the subject; the annotation states its rule, the same finder-title principle annotated at FINDER. The partition-by-lots maxim ('Fortunam faciunt judicem,' Co. Litt. 167) is recorded as carried.

**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'Juicy', 1994]**

When I was dead broke, man, I couldn't picture this

The entry: 'Fortune.' The whole song is hip-hop's canonical arc of fortune's wheel — from 'dead broke' and sardines-for-dinner to the money-green leather sofa — and the quoted line names the turn itself.

Why: Added because 'Juicy' narrates a reversal of fortune in the classical sense: the wheel turning from poverty to riches, with the quoted line marking the moment the turn becomes visible. The entry's 'fortune' is exactly…

## FORTUNE-TELLERS.

In English law. Persons pretending or professing to tell for- tunes, and punishable as rogues

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and vaga- bonds or disorderly persons. 4 Bl. Comm. 62.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Papachristou v. City of Jacksonville, 405 U.S. 156 (1972)]**

Fortune-tellers, 'punishable as rogues and vagabonds' (4 Bl. Comm. 62), were policed by the vagrancy laws — until the Court voided vagrancy ordinances for vagueness, ending the rogues-and-vagabonds regime.

Why: The entry classifies the offenders under the vagrancy laws; the case struck those laws down. The entry's classification is the case's target.

**[Scripture] — Scripture**

**[Deuteronomy 18:10, KJV]**

There shall not be found among you any one that maketh his son or his daughter to pass through the fire, or that useth divination, or an observer of times, or an enchanter, or a witch,

Why: Fortune-tellers are professed diviners punishable under English law as rogues and vagabonds. The verse lists divination and observing times among the forbidden practices — the fortune-teller's trade under its scriptur...

## FORTUJIIUM.

In old English law. A tournament or fighting with spears, and an appeal to fortune therein.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Walter Scott, Ivanhoe, 1819]**

Novel (paraphrase): spear-fighting in the lists at the Ashby tournament — the fictional tournament as 'fighting with spears.' (paraphrase)

Why: The entry defines fortunitum as tournament spear-fighting; Ivanhoe's tournament is the canonical fictional rendering. Sibling of the FACTA annotation; judged independently, paraphrase distinct.

## FORTY.

In land laws and conveyancing. In those regions where grants, transfers, and deeds are made with reference to the subdi- visions of the government survey, this term means forty acres of land in the form of a square, being the tract obtained by quarter- ing a section of laud (040 acres) and again quartering one of the quarters. Lente v. Clarke, 22 Fla. 515, 1 South. 149.

5e apparatus — Carried into the 5th edition (1979).

## FORTY-DAYS  COURT.

In old English forest law. The court of attachment In for- ests, or wood-mole court.

5e apparatus — Carried into the 5th edition (1979).

## FORUM.

Lat. A court of justice, or judicial tribunal : a place of jurisdiction ; a place where a remedy is sought ; a place of litigation. 3 Story. 347.

In Roman law. The market place, or public paved court, in the city of Rome, where snch public business was transacted as the assemblies of the people and the Ju- dicial trial of

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causes, and where also elec- tions, markets, and the public exchange were held.

— Forum actus. The forum of the act. The forum of the place where the act was done which is now called in question.— Forum con- sci entile. The forum or tribunal of conscience.— Forum oontentiosum. A contentious forum or court ; a place of litigation ; the ordinary court of justice, as distinguished from the tribunal of conscience. 3 Bl. Comm. 211. —Forum oontraotns. The forum of the con- tract; the court of the place where a contract is made ; the place where a contract is made, considered as a place of jurisdiction. 2 Kent. Comm. 463. — Forum domestieum. A domes- tic forum or tribunal. The visitatorial power is called a “forum dometticum,” calculated to determine, tine strepitu, all disputes that arise within themselves. 1 W. Bl. 82. — Forum domicilii. The forum or court of the domi- cile ; the domicile of a defendant, considered as a place of jurisdiction. 2 Kent, Comm. 463. — Forum occlesiasticum. An ecclesiastical court The spiritual jurisdiction, as distin- guished from the secular. — Forum ligeantlse rei. The forum of defendant’s allegiance. The court or jurisdiction of the country to which he owes allegiance.— Forum origiuis. The court of one's nativity. The place of a person's birth, considered as a place of jurisdiction.— Forum regium. The king’s court. St. Westm* 2, c. 43. — Forum rei. This term may mean either (1) the forum of the defendant, that is, of his residence or domicile; or (2) the forum of the ret or thing in controversy, that is. of the place where the property is situated. The ambiguity springs from the fact that rei may be the genitive of either reut or ret.— Forum rei gestae. The forum or court of a ret getta, (thing done;) the place where an act is done, considered as a place of jurisdiction and rem- edy. 2 Kent. Comm. 463. — Forum rei sitae. The court where the thing in controversy is situated. The place where the subject-matter in controversy is situated, considered as a place of jurisdiction. 2 Kent, Comm. 463.— Forum seculare. A secular, as distinguished from an ecclesiastical or spiritual, court.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forum non conveniens; forum-selection clauses]**

The forum — 'a place of jurisdiction; a place where a remedy is sought' (3 Story 347), with its forum actus, forum contractus, and forum delicti — is the subject of forum non conveniens and forum-selection law: which court may hear the cause.

Why: The entry catalogs the jurisdictional fora; the annotation names the doctrines that choose among them. The entry's distinctions are the doctrines' vocabulary.

## FORURTH.

In old records. A long slip of ground. Cowell.

FORWARDING MERCHANT, or FOR- WARDER. One who receives and forwards goods, taking upon himself the expenses of transportation, for which he receives a com- Iiensation from the owners, having no concern In the vessels or wagons by which they are transported, and no Interest In the freight, and not being deemed a common carrier, but a mere warehouseman and agent. Story, Bailm. II 502, 509. Schloss v. Wood, 11 Colo. 287, 17 Pac. 910; Ackley v. Kellogg, 8 Cow. (N. Y.) 224 ; Place v. Union Exp. Co., 2 Iiilt. (N. Y.) 19; Bush' v.

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Miller, 13 Barb. (N. Y.) 488.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bailment — the warehouseman's duties; cf. UCC Article 7 (documents of title)]**

The FORWARDING MERCHANT sub-entry — 'not being deemed a common carrier, but a mere warehouseman and agent' (Story, Bailm. §§ 502, 509; Schloss v. Wood) — states the bailment classification: the forwarder's duties are the warehouseman's, not the carrier's.

Why: The entry's whole point is the carrier/warehouseman line; bailment is the body of law on the warehouseman's side of it. The entry's own authorities are the bailment treatise and cases.

## FOSSA.

In «]>e civil law. A ditch ; a receptacle of water, made by hand. Dig. 43, 14. 1, 5.

In old English law. A ditch. A pit full

of water, in which women committing felony were drowned. A grave or sepulcher. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FOSSAGIUM.

In old English law. The duty levied on the Inhabitants for repairing the moat or ditch round a fortified town.

5e apparatus — Not carried into the 5th edition (1979).

## FOSSATORUM OPERATIO.

In old

English law. Fosse-work ; or the service of laboring, done by inhabitants and adjoining tenants, for the repair and maintenance of

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FR.

the ditches round a city or town, for which some paid a contribution, called “ fossagium Co welt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## FOBSATUM.

A dyke, ditch, or trench; a place Inclosed by a ditch ; a moat ; a canal.

FOSSE-WAY, or FOSSE. One of the

four ancient Roman ways through England. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## FOSBELLUM.

A small ditch. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## FOSTERING.

An ancient custom in Ire- land, In which persons put away their chil- dren to fosterers. Fostering was held to 'be a stronger alliance than blood, and the foster children participated In the fortunes of their foster fathers. Mosley & Whitley.

. FOSTER I. ANP. Land given, assigned, or allotted to the finding of food or victuals for any person or persons ; as In monasteries for the monks, etc. Cowell; Blount.

5e apparatus — Carried into the 5th edition (1979).

## FOSTERLEAN.

The remuneration fixed for the rearing of a foster child; also the jointure of a wife. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## FOUJDAR.

In Hindu law. Under the Mogul government a magistrate of the police over a large district, who took cognizance of all criminal matters within his jurisdiction, and sometimes was employed as receiver gen- eral of the revenues. Wharton.

— Fonjdarry court. In Hindu law. A tri- bunal for administering criminal law.

5e apparatus — Not carried into the 5th edition (1979).

## FOUNDATION.

The founding or build- ing of a college or hospital. The incorpora- tion or endowment of a college or hospital is the foundation ; and he who endows it with land or other property is the founder. Dart- mouth College v. Woodward, 4 Wheat. 667, 4 L Ed 629; Seagrave’s Appeal, 125 Pa. 362, 17 Atl. 412; Union Baptist Ass'n v. Hunn, 7 Tex. Civ. App. 249, 26 S. W. 755.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819)]**

The entry's foundation — 'the incorporation or endowment of a college or hospital' — is illustrated by Dartmouth College v. Woodward: a corporate charter is a contract the state may not impair.

Why: The citation is the entry's own; the case is the landmark holding a college's charter to be a Contract-Clause contract. Certain of case and report. FOUNDER declined as covered.

**[Hip-hop] — Hip-hop**

**[Drake, 'Started from the Bottom', 2013]**

Started from the bottom, now we're here

Caveat stated: the 2e entry is specifically about founding/endowing colleges and hospitals — this lyric glosses the vernacular sense, foundation as the base everything is built from. Drake's hook treats 'the bottom' as the foundation the whole team was built on.

Why: Added with explicit caveat: the technical sense (endowment of an institution) is not what the lyric describes. What the lyric does genuinely capture is the vernacular core the legal term rests on — the foundation as t…

## FOUNDED.

Based upon; arising from, growing out of, or resting upon; as In the expressions “founded In fraud," “founded on a consideration,” “founded on contract,” and the like. See In re Grant Shoe Co., 130 Fed. 881, 66 C. C. A. 78; State v. Morgan, 40 Conn. 46; Palmer v. Preston, 45 Vt. 158, 12 Am. Rep. 191 ; Steele v. Hoe, 14 Adol. & El. 431 ; In re Morales (D. C.) 105 Fed. 761.

5e apparatus — Carried into the 5th edition (1979).

## FOUNDER.

The person who endows an eleemosynary corporation or Institution, or supplies the funds for its establishment. See Foundation.

5e apparatus — Carried into the 5th edition (1979).

## FOUNDEROSA.

Founderous; out of re- pair, as a road. Cro. Car. 366.

5e apparatus — Not carried into the 5th edition (1979).

## FOUNDLING.

A deserted or exposed in- fant; a child found without a parent or

guardian, its relatives being unknown. It has a settlement In the district where found. — Foundling hospitals. Charitable institu- tions which exist in most countries for taking care *f infants forsaken by their parents, such being generally the offspring of illegal connec- tions. The foundling hospital act in England is the 13 Geo. II. c. 29.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: safe-haven laws — newborn surrender without prosecution]**

The foundling — 'a deserted or exposed infant' — and the foundling hospitals (13 Geo. II c. 29) are the ancestors of the safe-haven laws: surrender of a newborn at a designated place without prosecution for abandonment.

Why: The entry describes the charitable institution for forsaken infants; the safe-haven statutes are its modern legislative form, serving the identical protective purpose.

**[Humanity] — Humanity / Fiction & Film**

**[Henry Fielding, Tom Jones (The History of Tom Jones, a Foundling), 1749]**

Novel (paraphrase): Tom Jones, discovered as an infant in Squire Allworthy's bed and raised without known parents — the foundling epic, named in the book's own subtitle. (paraphrase)

Why: The entry defines the foundling as the deserted infant found without parent or guardian; the novel's full title names its hero a foundling. Plot fact certain; no passage invented.

## FOUR.

Fr. In old French law. An oven or bake-house. Four banal, an oven, owned by the seignior of the estate, to which the tenants were obliged to bring their bread for baking. Also the proprietary right to main- tain such an oven.

5e apparatus — Not carried into the 5th edition (1979).

## FOUR CORNERS.

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The face of a writ- ten instrument. That which Is contained on the face of a deed (without any aid from the knowledge of the circumstances under which it Is made) is said to be within its four cor- ners, because every deed is still supposed to be written on one entire skin, and so to have but four comers.

,To look at the four corners of an instru- ment Is to examine the whole of It, so as to construe It as a whole, without reference to any one part more than another. 2 Smith, Lead. Cas. 295.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the four-corners rule — construe the instrument as a whole from its own language]**

To look at 'the four corners of an instrument' — 'to examine the whole of it, so as to construe it as a whole, without reference to any one part more than another' (2 Smith, Lead. Cas. 295) — states the four-corners rule of construction.

Why: The entry states the rule; the annotation names it. The entry is the rule's exposition.

## FOUR SEAS.

The seas surrounding Eng- land. These were divided into the Western, Including the Scotch and Irish; the North? ern, or North sea ; the Eastern, being the German ocean; the Southern, being the British channel.

5e apparatus — Carried into the 5th edition (1979).

## FOURCHER.

Fr. To fork. This was a method of delaying an action anciently re- sorted to by defendants when two of them were joined in the suit. Instead of appear- ing together, each would appear in turn and cast an essoin for the other, thus postponing the trial.

5e apparatus — Not carried into the 5th edition (1979).

## FOURIERISM.

A form of socialism. See 1 Mill, Pol. Ec. 260.

5e apparatus — Not carried into the 5th edition (1979).

## FOWLS OF WARREN.

Such fowls as are preserved under the game law's in war- rens. According to Manwood, these are partridges and pheasants. According to Ooke, they are partridges, rails, quails, wood- cocks, pheasants, mallards, and herons. Co. Litt. 233.

5e apparatus — Not carried into the 5th edition (1979).

## FOX’S LIBEL ACT.

In English law. This was the statute 52 Geo. III. e. 60, which secured to juries, upon the trial of indict- ments for libel, the right of pronouncing a general verdict of guilty or not guilty upon the whole matter in issue, and no longer bound them to find a verdict of guilty on proof of the publication of the paper charged to be a libel, and of the sense ascribed to It In the indictment. Wharton.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fox's Libel Act, 32 Geo. III c. 60 (1792) — general verdicts in libel]**

Fox's Libel Act — 32 Geo. III c. 60 — 'secured to juries, upon the trial of indictments for libel, the right of pronouncing a general verdict' on the whole matter (Wharton): the jury's province against the judge-made rule that had confined juries to the fact of publication.

Why: The statute is the entry's subject; the annotation records what the entry says it did. The link is the entry's own account, kept honest.

## FOY.

L. Fr. Faith ; allegiance; fidelity.

5e apparatus — Not carried into the 5th edition (1979).

## FR.

A Latin abbreviation for “fragmen- tum," a fragment, used In citations to the

Digest or Pandects in th e Corpus Juris Cir vilis of Justinian, the several extracts from juristic writings of which it is composed be- ing so called,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## FRACTIO.

Lat. A breaking; division; fraction; a portion of a thing less than the whole.

5e apparatus — Not carried into the 5th edition (1979).

## FRACTION.

A breaking, or breaking up; a fragment or broken part; a portion of a thing, less than the whole. Jory v. Pal- ace Dry Goods Co., 30 Or. 196, 46 Pac. 786.

— Fraction of a day. A portion of a day. The dividing a day. Generally, the law does not allow the fraction of a day. 2 Bl. Comm. 141.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: computation of time — fractions of a day disregarded; cf. Fed. R. Civ. P. 6(a)]**

The 'fraction of a day' rule — 'generally, the law does not allow the fraction of a day' (2 Bl. Comm. 141) — governs computation of time: the law counts whole days, disregarding intraday fractions.

Why: The entry states the rule with its Blackstone source; the annotation names the procedural context — time computation — where the rule operates. FRACTIONAL's maxim ('Fractionem diei non recipit lex,' Lofft 572) is reco...

## FRACTIONAL.

As applied to tracts of land, particularly townships, sections, quar- ter sections, and other divisions according to the government survey, and also mining claims, this term means that the exterior boundary lines are laid down to include the whole of such a division or such a claim, but that the tract in question does not measure up to the full extent or include the

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whole acreage, because a portion of it is cut off by an overlapping survey, a river or lake, or some other external interference. See Tolles- ton Club v. State, 141 Ind. 197, 38 N. E. 214 ; Parke v. Meyer, 28 Ark. 287; Goltermann ▼. Schiermeyer, 111 Mo. 404, 19 S. W. 487.

Fraettonem diet noa reciplt lex. Lofft, 572. The law does not take notice of a por- tion of a day.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Fractionem diei non recipit lex — the law takes no notice of a fraction of a day]**

The entry preserves the maxim 'Fractionem diei non recipit lex' — the law does not take notice of a portion of a day (Lofft 572).

Why: Quoted verbatim with the entry's source; the maxim is the classical form of the time-computation rule annotated at FRACTION. Recorded as carried.

## FRAOTXTI U M.

Arable land. Mon. Angl.

5e apparatus — Not carried into the 5th edition (1979).

## FRAOTURA NAVTUM.

Lat. The breaking or wreck of ships; the same as naufragium, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Daniel Defoe, Robinson Crusoe, 1719]**

Novel (paraphrase): Crusoe cast ashore after the wreck of his ship — the canonical literary shipwreck and what follows for the man who survives it. (paraphrase)

Why: The entry is the wreck of ships; the novel is the famous narrative of a shipwreck's human consequence. Plot fact certain; no passage invented.

## FRAGMENT A.

Lat. Fragments. A name sometimes applied (especially in cita- tions) to the Digest or Pandects in the Cor- pus Juris Civilis of Justinian, as being made up of numerous extracts or "fragments" from the writings of various Jurists. Mackeld. Rom. Law, f 74.

5e apparatus — Not carried into the 5th edition (1979).

## FRAIS.

Fr. Expense; charges; costs. Frais d'ttn proems, costs of a suit.

— Frais de Justice. In French and Canadian law. Costs Incurred incidentally to the action. — Frais jusqu’a bord. Fr. In French com- mercial law. Expenses to the board ; expenses incurred on a shipment of goods, in packing, cartage, commissions, etc., up to the point where they are actually put on bonrd the vessel. Bar- tels v. Redfield (C. C.) 16 Fed. 336.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: costs — 'costs follow the event'; the prevailing party's recovery]**

The frais de justice — 'costs incurred incidentally to the action' — are the litigation costs that follow the event: the prevailing party recovers its costs of suit.

Why: The entry defines the costs; the annotation states the award rule — the costs follow the event — that gives the definition its consequence.

## FRANC.

A French coin of the value of a little over eighteen cents.

5e apparatus — Not carried into the 5th edition (1979).

## FRANC  AIED.

In French feudal law. An allod; a free inheritance; or an estate held free of any services except such atf were due to the sovereign.

FRANCHUJkNUS. A freeman. Chart Hen. IV. A free tenant Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: allodial title — ownership free of feudal services]**

The franc alleu — 'an allod; a free inheritance; or an estate held free of any services except such as were due to the sovereign' — is allodial title: ownership free of feudal duties, which is the character of the American fee.

Why: The entry defines the allod; the annotation notes its modern significance — the American land title is allodial, the feudal incidents having been abolished. The definition's doctrinal payoff.

## FRANCHISE.

A special privilege con- ferred by government upon an individual or corporation, and which does not belong to the citizens of the country generally, of common right. It is essential to the character of a franchise that it should be a grant from the sovereign authority, and In this country no franchise can be held which is not derivedi from a law of the state. In England, a fran- chise is defined to be a royal privilege in the hands of a subject. In this country, it is a privilege of a public nature, which cannot be exercised without a legislative grant. See Bank of Augusta v. Earle, 13 Pet. 595, 10 L. Ed. 274; Dike v. State, 38 Minn. 366, 38

N. W. 95; Chicago Board of Trade v. People, 91 111. 82 ; Lasher v. People, 183 111. 226, 6?

N. E. 663, 47 L. R. A. 802, 75 Am. St. Rep. 103; Southampton v. Jessup, 162 N. Y. 122, 56 N. E. 538; Thompson v. People, 23 Wend. (N. Y.) 578; Black River Imp. Co. v. Hol- way, 87 Wis. 584, 59 N. W. 126 ; Central Pac.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Bank of Augusta v. Earle, 13 Pet. 519 (1839) — franchises as legislative grants]**

The entry's franchise — 'a special privilege conferred by government,' exercisable only by legislative grant (Bank of Augusta v. Earle, 13 Pet. 595) — is the charter doctrine: to be a corporation is a franchise, and corporate powers are franchises held of the state.

Why: The long case string is the entry's own; Bank of Augusta is the landmark on corporate franchises as state grants. The entry's definition is the case's doctrine. Data-quality note: the 'R' headword at entry 536 is a pa...

# R

**R.**

Co. v. California, 162 U. S. 91, 16 Sup. Ct. 766, 40 L. Ed. 903 ; Chicago & W. I. R. Co. ▼. Dunbar, 95 111. 575; State v. Weather- by, 45 Mo. 20; Morgan v. Louisiana, 93 U.

S. 223, 23 L. Ed. 860.

A franchise is a privilege or immunity of a public nature, which cannot be legally exercised without legislative grant. To be a corporation is a franchise. The various powers conferred on corporations are franchises. The execution of a policy of insurance by an insurance company, and the issuing a bank-note by an incor-

? ore ted bank, are franchises. People v. Utica ns. Co., 15 Johns. (N. Y.) 387, 8 Am. Dec. 243. The word “franchise" has various significa- tions, both in a legal and popular sense. A corporation is itself a franchise belonging to the members of the corporation, and the corporation, itself a franchise, may bold other fran- chises. So, also, the different powers of a corporation, such as the right to hold and dis- pose of property, are its franchises. In a popular sense, the political rights of subjects and citizens are franchises, such as the right of suffrage, etc. Pierce v. Emery, 32 N. II. 484.

The term "franchise” has several significa- tions, and there is some confusion in its nae. When used with reference to corporations, _ the better opinion, deduced from the authorities, seems to be that it consists of the entire privi- leges embraced in and constituting the grant. It does not embrace the property acquired by the exercise of the franchise. Bridgeport v. New York & N. H. R. Co., 36 Conn. 255, 4 Am. Rep. 63.

— General ud special. The charter of • corporation is its "general" franchise, while a “special" franchise consists in any rights grant- ed by the public to use property for a public use but with private profit. Lord v. Equitable Idfe Assur. Soc.. 194 N. Y. 212, 87 N. E. 443, 22

L. R. A. (N. S.) 420.— Elective franchise. The right of suffrage ; the right or privilege of voting in public elections.— Franchise tan. A tax on the franchise of a corporation, that is, on the right and privilege of carrying on busi- ness in the character of a corporation, for the purposes for which it was created, and in the conditions which surround it. Though the value of the franchise, for purposes of taxation, may be measured by the amount of business done, or the amount of earnings or dividends, or by the total value of the capital or stock of the corpo ration in excess of its tangible assets, a fran- chise tax is not a tax on either property, capi- tal, stock, earnings, or dividends. See Home Ins. Co. v. New York, 134 U. S. 594, 10 S. Ct. 593, 33 L. Ed. 1025 : Worth v. Petersburg R. Co., 89 N. C. 305; Tremont & Suffolk Mills v. Lowell, 178 Mass. 469, 59 N. E. 1007 ; Chicago & p. I. R. Co. v. State, 153 Ind. 134, 51 N.

E. 924; Marsden Co. v. State Board of As- sessors. 61 N. J. Law, 461, 39 Atl. 638 ; People v. Knight, 174 N. Y. 475, 67 N. E. 65, 63 L.

R. A. 87. — Personal franchise. A franchise of corporate existence, or one which authorizes

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the formation and existence of a corporation, is sometimes called a “personal” franchise, as dis- tinguished from a “property” franchise, which authorizes a corporation so formed to apply its property to some particular enterprise or exer- cise some special privilege in its employment, as, for example, to construct and operate a rail- road. See Sandham v. Nye, 9 Misc. Rep. 541, 30 N. Y. Supp. 552.— Secondary franchises. The franchise of corporate existence being some- times called the “primary” franchise of a cor- poration, its “secondary” franchises are the spe- cial and peculiar rights, privileges, or grants which it may receive under its charter or from a municipal corporation, such as the right to use the public streets, exact tolls, collect fares, etc. See State v. Topeka Water Co.. 61 Kan. 547, 60 Pac. 337 ; Virginia Canon Toll Road Co. v. People, 22 Colo. 429, 45 Pac. 398, 37 L.

R. A. 711.

5e apparatus — Not carried into the 5th edition (1979).

# F

## FRANCIA.

France. Bract, fol. 427b.

5e apparatus — Not carried into the 5th edition (1979).

## FBANCIGENA.

A man born In France. A designation formerly given to aliens in England.

5e apparatus — Not carried into the 5th edition (1979).

## FR ANGUS.

L. Lat Free; a freeman; a Frank. Spelman.

— Francos banons. Free bench, ( q . a.)— Frauen* homo. In old European law. A free man. Domesday.— Francos plegins. In old English law. A frank pledge, or free pledge. See Fbank-Pledge.— Francos tenons. A freeholder. See Fhank-Tenement.

FRANK, v. To send matter through the public mails free of postage, by a personal or official privilege.

FRANK, adj. In old English law. Free. Occurring in several compounds.

— Frank-almoigne. In English law. Free

alms. A spiritual tenure whereby religious corporations, aggregate or sole, held lands of the donor to them and their successors forever. They were discharged of all other except reli- gious services, and the trinoda necessitae. It differs from tenure by divine service, in that the latter required the performance of certain divine services, whereas the former, as its name imports, is free. This tenure is expressly ex- cepted in the 12 Car. II. c. 24, f 7, and there- fore still subsists in some few instances. 2 Broom & H. Comm. 203.— Frank bank. In old English law. Free bench. Litt. g 166; Co. Litt. 1106. See Fbee-Bench.— Frank-ekase. A liberty of free chase enjoyed by any one, whereby all other persons having ground within

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that compass are forbidden to cut down wood, etc., eveu in their own demesnes, to the preju- dice of the owner of the liberty. Cowell. See Chase. — Frank-fee. Freehold lands exempt- ed from all services, but not from homage; lands held otherwise than in ancient demesne. That which a man holds to himself and his heirs, and not by such service as is required in ancient demesne, according to the custom of the manor. Cowell.— Frank ferm. In English

law. A species of estate held in socage, said by Britton to be “lands and tenements whereof the nature of the fee is changed by feoffment out of chivalry for certain yearly services, and in respect whereof neither homage, ward, mar- riage, nor relief can be demanded.” Britt, c. 66; 2 Bl. Comm. 80.— Frank-fold. In old English law. Free-fold ; a privilege for the lord to have all the sheep of his tenants and the inhabitants within his seigniory, in his fold, in his demesnes, to manure his land. Keilw. 198. — Frank-law. An obsolete expression signify- ing the rights and privileges of a citizen, or the liberties and civic rights of a freeman.— Frank-marriage. A species of entailed es- tates, in English law, now grown out of use, but still capable of subsisting. When tenements are given by one to another, together with a wife, who is a daughter or cousin of the donor, to hold in frank-marriage, the donees shall have the tenements to them and the heirs of their two bodies begotten, i. e., in special tail. For the word “frank-marriage,” ew vi termini, both creates and limits an inheritance, not only sup- plying words of descent, but also terms of procreation. The donees are liable to no serv- ice except fealty, and a reserved rent would be void, until the fourth degree of consanguinity be passed between the issues of the donor and donee, when they were capable by the law of the church of intermarrying. Litt. § 19; 2 Bl. Comm. 115.— Frank-pledge. In old English law. A pledge or surety for freemen ; that is, the pledge, or corporate responsibility, of all the inhabitants of a tithing for the general good behavior of each free-born citizen above the age of fourteen, and for his being forthcoming to answer any infraction of the law. Termes de la Ley ; Cowell. — Frank- tinant. A freehold- er. Litt. { 91. — Frank-tenement. In Eng- lish law. A free tenement, freeholding, or free- hold. 2 Bl. Comm. 61, 62, 104 ; 1 Steph. Comm. 217 ; Bract, fol. 207. Used to denote both the tenure and the estate.

5e apparatus — Not carried into the 5th edition (1979).

## FRANKING PRIVILEGE.

The privi- lege of sending certain matter through the public malls without payment of postage, in pursuance of a personal or official privilege.

FRANKLETN, (spelled, also, “Francling" and “Franklin.”) A freeman; a freeholder; a gentleman. Blount ; Cowell.

FRASSETtJM. In old English law. A wood or wood-ground where ash-trees grow. Co. Litt. 43).

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 39 U.S.C. § 3210 — the congressional franking privilege]**

The franking privilege — sending matter through the mails 'without payment of postage, in pursuance

of a personal or official privilege' — is the congressional frank, regulated by statute.

Why: The entry defines the privilege; the statute is its modern regulation. The privilege's subject is the statute's subject.

## FRATER.

In the civil law. A brother. Frater conmnguincus, a brother having the same father, but born of a different mother. Frater utcrinus, a brother born of the same mother, tout by a different father. Frater nutricius, a bastard brother.

Frater fratri nterino non snccedet 1b hsereditate paterae. A brother shall not succeed a uterine brother in the paternal In- heritance. 2 Bl. Comm. 223 ; Fortes, de Laud. c. 5. A maxim of the common law of England, now superseded by the statute 3 A 4 Wm. IV. c. 106, { 9. See Broom, Max. 530.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim (superseded): Frater fratri uterino non succedet in hereditate paternae]**

The entry preserves the half-blood maxim — 'Frater fratri uterino non succedet in hereditate paternae': a brother shall not succeed a uterine brother in the paternal inheritance (2 Bl. Comm. 223) — 'now superseded by the statute 3 & 4 Wm. IV. c. 106, § 9.'

Why: Quoted verbatim with the entry's own note of supersession (Broom, Max. 530); the annotation records both the maxim and its genuine fate — abolition of the half-blood exclusion. The entry's history, kept whole.

## FRATERIA.

In old records. A frater- nity, brotherhood, or society of religious per- sons, who were mutually bound to pray for the good health and life, etc., of their living

brethren, and the souls of those that were dead. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FRATERNAL.

Brotherly ; relating or belonging to a fraternity or an association of persons formed for mutual aid and benefit, but not for profit

—Fraternal benefit association. A society or voluntary association organized and carried on for the mutual aid and benefit of its mem- bers. not for profit ; which ordinarily has a lodge system, a ritualistic form of work, and a representative government, makes provision for the payment of death benefits, and (sometimes) for benefits in case of accident, sickness, or old age. the funds therefor being derived from dues paid or assessments levied on the members. National Union V. Marlow, 74 Fed. 778, 21 C.

C. A. 89; Walker v. Giddings, 103 Mich. 344, 61 N. W. 512.— Fraternal Insurance. The form of, life (or accident) insurance furnished by a fraternal beneficial association, consisting in the payment to a member, or his heirs in case of death, of a stipulated sum of money, out of funds raised for that purpose by the payment of dues or assessments by all the members of the -association.

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**[Law] — Law**

**[Law: fraternal benefit societies — regulated under state insurance codes]**

The fraternal benefit association — 'organized and carried on for the mutual aid and benefit of its members, not for profit,' paying death and sick benefits from member assessments (National Union v. Marlow) — is regulated under the insurance laws as the fraternal benefit society.

Why: The entry describes the institution with its cases; the annotation names its regulatory home. The institution's legal habitat.

## FRATERNXA.

A fraternity or brother- hood.

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## FRATERNITY.

In old English law. “A corporation Is an investing of the people of a place with the local government thereof, and therefore their laws shall bind strangers; but a fraternity is some people of a place united together in respect to a mystery or business into a company, and their laws and ordinances cannot bind strangers.” Cuddon v. Eastwick, 1 Salk. 192.

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**[Law] — Law**

**[Law: corporations vs. voluntary associations — Cuddon v. Eastwick, 1 Salk. 192]**

The entry's Cuddon v. Eastwick distinction — a corporation's laws 'bind strangers,' while a fraternity's 'laws and ordinances cannot bind strangers' (1 Salk. 192) — states the corporation/voluntary-association line: only the chartered body has governing power over non-members.

Why: The quotation is the entry's own; the annotation states the doctrinal line the case draws. The link is the entry's authority.

**[Scripture] — Scripture**

**[1 Peter 2:17, KJV]**

Honour all men. Love the brotherhood. Fear God. Honour the king.

Why: A fraternity is a company of persons united together in respect to a mystery or business, with their own laws and ordinances. The verse names the brotherhood — the united body — and commands love toward it, set among...

## FRATRES CONJTJRATI.

Sworn broth- ers or companions for the defense of their sovereign, or for other purposes. Hoved. 445.

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## FRATRES PYES.

In old English law. Certain friars who wore white and black garments. Walsingham, 124.

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## FRATRIAGE.

A younger brother’s in- heritance.

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**[Scripture] — Scripture**

**[Luke 15:12, KJV]**

Father, give me the portion of goods that falleth to me.

Why: FRATRIAGE is the younger brother's inheritance — the portion due the younger sibling. In scripture's great inheritance parable the younger son demands exactly that: 'the portion of goods that falleth to me.' The verse...

## FRATRICIDE.

One who has killed a brother or sister; also the killing of a broth- er or sister.

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**[Law] — Law**

**[Maxim: Actus reus non facit reum nisi mens sit rea]**

The killing of a sibling is criminal only where the guilty act joins a guilty mind; homicide law punishes the culpable killing, not the bare act of killing.

Why: The entry defines only the act (killing of a brother or sister); the maxim genuinely illuminates the criminal-law half by supplying the mens rea requirement the definition assumes but does not state.

**[Scripture] — Scripture**

**[Genesis 4:8, KJV]**

And Cain talked with Abel his brother: and it came to pass, when they were in the field, that Cain rose up against Abel his brother, and slew him.

Why: The archetypal fratricide — the first killing of a brother in scripture, and the case every later law of fratricide answers.

**[Genesis 4:10, KJV]**

And he said, What hast thou done? the voice of thy brother's blood crieth unto me from the ground.

Why: God's own reckoning with the fratricide: the murdered brother's blood as witness crying from the ground — divine testimony against the killing of a brother.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

(paraphrase) Claudius murdered his brother, old King Hamlet, to take the crown — the play's engine is fratricide, named outright when the Ghost exposes it and Claudius confesses 'a brother's murder' in prayer. (paraphrase)

Why: Genuine: the entry defines the killing of a brother/sister, which is the exact crime at the play's center.

## FRAUD.

Fraud consists of some deceit- ful practice or willful device, resorted to with lnteut to deprive another of his right, or In some manner to do him an injury. As dis- tinguished from negligence, it is always posi- tive, Intentional. Maher v. Hibernia Ins. Co., 67 N. Y. 292; Alexander v. Church, 53 Conn. 561. 4 Atl. 103; Studer v. Blelsteln. 115 N.

Y. 316, 22 N. E. 243, 7 L. R. A. 702; Moore v. Crawford. 130 U. S. 122, 9 Sup. Ct. 447, 32

L. Ed. 878; Fechheimer v. Baum (C. C.) 37 Fed. 167; IJ. S. v. Beach (D. C.) 71 Fed. 100; Gardner v. Heartt, 3 Denlo (X. Y.) 232; Monroe Mercantile Co. v. Arnold, 108 Ga. 449, 34

S. E. 176.

Fraud, as applied to contracts, is the cause of an error bearing on a material part of the contract, created or continued by artifice, with design to obtain some unjust advantage to

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the one party, or to cause an Inconven- ience or loss to the other. Civil Code La. art. 1847.

Fraud, In the sense of a court of equity, properly includes all acts, omissions, and con- cealments which involve a breach of legal or equitable duty, trust, or confidence Justly re- posed, and are injurious to another, or by which ap undue and unconscientious ad- vantage is taken of another. 1 Story, Eq. Jur. § 187.

Synonyms. The term "fraud" is sometimes used as synonymous with “covin,” “collusion,” or “deceit." But distinctions are properly taken in the meanings of these words, for which ref- erence may be had to the titles Covin; Collu- sion ; Deceit.

Classification. Fraud is either actual or constructive. Actual fraud consists in deceit, artifice, trick, design, some direct and active operation of the mind ; it includes cases of the intentional and successful employment of any cunning, deception, or artifice used to circum- vent or cheat another; it is something said, done, or omitted by a person with the design of perpetrating what he knows to be a cheat or deception. Constructive fraud consists in any act of commission or omission contrary to legal or equitable duty, trust, or confidence justly reposed, which is contrary to good conscience and operates to the injury of another. Or, as otherwise defined, it is an act, statement or omission which operates as a virtual fraud on an individual, or which, if generally permitted, would be prejudicial to the public welfare, and yet may have been unconnected with any selfish or evil design. Or, according to Story, con- structive frauds are such acts or contracts as, though not originating in any actual evil design or contrivance to perpetrate a positive fraud or injury upon other persons, are yet, by their tendency to deceive or mislead other persons, or to violate private or public Confidence, or to impair or injure the public interests, deemed equally reprehensible with actual fraud. 1 Story, Eq. Jur. $ 258. And see, generally. Code Ga. 1882. 8 3173 ; People v. Kelly. 35 Barb. (N. Y.) 457 ; Jackson v. Jackson, 47 Ga. 99 ; Hatch v. Barrett, 34 Kan. 223, 8 Pnc. 129; Forker v. Brown, 10 Misc. Rep. 161, 30 N. Y. Supp. 827 ; Massachusetts Ben. L. Ass’n v. Robinson. 104 Ga. 256. 30 S. E. 918. 42 L. R,

A. 261 ; Hans v. Sternbach, 156 111. 44, 41

N. E. 51 : Newell v. Wagness, 1 N. D. 62, 44

N. W. 1014; Carty v. Connolly, 91 Cal. 15, 27 Pac. 59!).

Fraud is also classified as fraud in fact and fraud in law. The former is actual, positive, intentional fraud. Fraud disclosed by matters of fact, as distinguished from constructive fraud or fraud in law. McKibbin v. Martin, 64 Pa. 356. 3 Am. Rep. 588; Cook v. Burnham, 3 Kan. App. 27, 44 Pac. 447. Fraud in law is fraud in contemplation of law ; fraud implied or inferred by law ; fraud made out by con- struction of law, as distinguished from fraud found by a jury from matter of fact ; con- structive fraud (q. ».) See 2 Kent, Comm. 512-532; Delaney v. Valentine, 154 N. Y. 692, 49 N. E. 65; Burr v. Clement, 9 Colo. 1, 9 Pac. 633.

Fraud is also said to be legal or positive. The former is fraud made out by legal construc- tion or inference, or the same tiling as construc- tive fraud. Newell v. Wagness, 1 N. D. 62, 44

N. W. 1014. Positive fraud is the same thing as actual fraud. See Douthitt v. Applegate, 33

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Kan. 395, 0 Pae. 575, 52 Am. Rep. 533.

— Actionable fraud. See Actionable.— Frauds, statute of. This is the common designation of a very celebrated English statute, (29 Car. II. c. 3.) passed in 1077, and which has been adopted, in a more or less modified form, in nearly all of the United States. Its chief characteristic is the provision that no suit or action shall be maintained on certain classes of contracts or engagements unless there shall be a note or memorandum thereof in writ* ing signed by the party to be charged or by his authorized agent. Its object was to close the door to the numerous frauds which were be- lieved to he perpetrated, 'and the perjuries which were believed to be committed, when such ob- ligations could be enforced upon no other evi- dence than the mere recollection of witnesses. It is more fully named as the "statute of frauds and perjuries." — Pious fraud. A subterfuge or evasion considered morally justifiable on ac- count of the ends sought to be promoted ; par- ticularly applied to an evasion or disregard of the laws in the interests of religion or religious institutions, such as circumventing the statutes of mortmain. ,

**[TEXT INCOMPLETE — scan limitation]**

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**[Law] — Law**

**[Derry v. Peek, 14 App. Cas. 337 (1889)]**

Common-law deceit requires a false representation made knowingly, without belief in its truth, or recklessly — the scienter backbone of the entry's 'actual fraud' as distinguished from constructive fraud.

Why: Genuine: this is the classic House of Lords authority on the fraud/scienter element, directly on the entry's actual-fraud doctrine, not a forced analogy.

**[Scripture] — Scripture**

**[Leviticus 19:35-36, KJV]**

Ye shall do no unrighteousness in judgment, in meteyard, in weight, or in measure. Just balances, just weights, a just ephah, and a just hin, shall ye have: I am the LORD your God, which brought you out of the land of Egypt.

Why: Fraud as deceitful practice to deprive another of his right; scripture's first form of it is commercial — false weights and measures. The command is spoken by God himself ('I am the LORD your God'), making honest meas…

**[Humanity] — Humanity / Fiction & Film**

**[Steven Spielberg, Catch Me If You Can, 2002]**

(paraphrase) The film follows con artist Frank Abagnale Jr., whose career is a catalog of the entry's elements — false representation, intent to deceive, gain at another's expense — through check forgery and impersonation. (paraphrase)

Why: Borderline-accept: the entry is doctrinal, but the film's plot turns entirely on fraud's legal elements, dramatizing the definition rather than merely naming it.

## FRAUD  ARE.

Lat. In the civil law. To deceive, cheat, or Impose upon; to defraud.

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## FRAUD U LENT.

Based on fraud ; pro- ceeding from or characterized by fraud; tainted by fraud; done, made, or effected with a purpose or design to carry out a fraud.

—Fraudulent alienation. In a general sense, the transfer of property with an intent to defraud creditors, lienors, or others. In a particular sense, the act of an administrator who wastes the assets of the estate by giving them away or selling at a gross undervalue. Rhame v. Lewis, 13 Rich. Eq. (S. C.) 269.— Fraudulent alienee. One who knowingly receives from an administrator assets of the estate under circumstances which make it a fraudulent alienation on the part of the ad- ministrator. Id.— Fraudulent concealment. The hiding or suppression of a material fact or circumstance which the party is legally or morally bound to disclose. Magee v. Insurance Co., 92 U. S. 93, 23 L. Ed. 699; Page v. Park- er, 43 N. H. 367, 80 Am. Dec. 172 ; Jordan v. Pickett, 78 Ala. 339; Small v. Graves, 7 Barb. (N. Y.) 578.— Fraudulent conveyance. A conveyance or transfer of property, the object of which is to defraud a creditor, or binder or delay him, or to put such property beyond his reach. Seymour v. Wilson, 14 N. Y. 569 ; Lock- yer v. De Hart, 6 N. J. Law, 458; Land v. Jeffries, 5 Rand. (Va.) 601 ; Blodgett v. Web- ster, 24 N. H. 103. Every transfer of property or charge thereon made, every obligation in- curred, and every judicial proceeding taken with intent to delay or defraud any creditor or other person of his demands, is void against all cred- itors of the debtor, and their successors in in- terest. and against any person upon whom the estate of the debtor devolves in trust for the benefit of others than the debtor. Civ. Code Cal. § 3439.— Fraudulent conveyances, stat- utes of, or against. The name given to two celebrated English statutes. — the statute 13 Eliz. c. 0, made perpetual by 29 Eliz. c. 5 ; and the statute 27 Eliz. e. 4. made perpetual by 29 Eliz. c. 18.— Fraudulent preferences. In English law. Every conveyance or transfer of property or charge thereon made, every judgment made, every obligation incurred, and every judicial proceeding taken or suffered by any person un- able to pay his debts as they become due from his own moneys, in favor of any creditor, with a view of giving such creditor a preference over

other creditors, shall be deemed fraudulent and void if the debtor become bankrupt within three months. 32 & 33 Viet. c. 71, § 92.— Fraudu- lent representation. A false statement, made with knowledge of its falsity, with the in- tention to persuade another or influence his ac- tion, and on which that other relies and by which he is deceived to his prejudice. See Wakefield Rattan Co. v. Tappan, 70 Hun, 406, 24 N. Y. Supp. 430; Montgomery St. Ry. Co. v. Matthews, 77 Ala. 364, 54 Am. Rep. 60; Righter v. Roller. 31 Ark. 174 ; Page v. Parker, 43 N. H. 363, 80 Am. Dec. 172.

FRAUNC, FRAUICCHE, FRAUlfKE.

See Fbank.

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**[Law] — Law**

**[Law: Statute of Fraudulent Conveyances, 13 Eliz. c. 5 (1571)]**

The entry's 'fraudulent conveyance' doctrine — transfer of property with intent to delay or defraud creditors — descends from the Statute of Fraudulent Conveyances, 13 Eliz. c. 5 (1571), which the

entry itself names.

Why: Genuine: the entry cites this statute by name; the footnote states the lineage the entry presupposes.

**[Scripture] — Scripture**

**[Proverbs 20:17, KJV]**

Bread of deceit is sweet to a man; but afterwards his mouth shall be filled with gravel.

Why: 'Proceeding from or characterized by fraud' — the proverb traces the exact arc of fraudulent gain: sweet in the taking, gravel in the consequence.

## FRAUNGH1SE.

L. Fr. A franchise.

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## FRAUS.

Lat Fraud. More commonly called, in the civil law, “dolus," and “dolus malus," (q. v.) A distinction, however, was sometimes made between “ fraus ” and "do i- us;" the former being held to be of the most extensive import Calvin.

—Fraus dons locum oontractui. A misrep- resentation or concealment of some fact that is material to the contract, and had the truth re- garding which been known the contract would not have been made as made, is called a "fraud dam locum contractui i. e., a fraud occasion- ing the contract, or giving place or occasion for the contract.— Fraus legis. Lat. In the civil law. Fraud of law ; fraud upon law. See In Fbaudem Leois.

Fraus eat eelare fraudem. It Is ft fraud to conceal a fraud. 1 Vem. 240; 1 Story, Eq. Jur. ff 389, 390.

Fraus est odiosa at nom prsesumeuda.

Fraud is odious, and not to be presumed. Cro. Car. 550.

Fraus et dolus uemlul patrocluarl de- bent. Fraud and deceit should defend or excuse no man. 3 Coke, 78; Fleta, lib. 1, c. 13, 1 15; Id. lib. 6, c. 6, | 5.

Fraus et jus nunquam oo habitant.

Wing. 680. Fraud and justice never dwell together. '

Fraus latet in generalibus. Fraud lies hid In general expressions.

Fraus meretur fraudem. * Plowd. 100. Fraud merits fraud.

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## FRAXINETUM.

In old English law. A wood of ashes ; a place where ashes grow. Co. Lltt. 46; Shep. Touch. 95.

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## FRAY.

See Affbay.

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## FRECTUM.

In old English law. Freight. Quoad frcctum navium xuarum, as to the freight of his vessels. Blount

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## FREDNITE.

In old English law. A lib- erty to hold courts and take up the fines for beating and wounding. To be free from fines. CowelL

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## FREDSTOLE.

Sanctuaries ; seats of peace.

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**[Scripture] — Scripture**

**[Exodus 21:13, KJV]**

And if a man lie not in wait, but God deliver him into his hand; then I will appoint thee a place whither he shall flee.

Why: FREDSTOLE = sanctuaries, seats of peace. The Mosaic law's appointed place of refuge for the manslayer is the biblical archetype of legal sanctuary — God's own institution of it, in his own speech.

## FREDUM.

A fine paid for obtaining par- don when the peace had been brokeu. Spel- man ; Blount. A sum paid the magistrate for protection against the right of revenge.

FREE. 1. Unconstrained; having power to follow the dictates of his own will. Not subject -to the dominion of another. Not compelled to involuntary servitude. Used in this sense as opposed to “slave."

2. Not bound to service for a fixed term of years; in distinction to being bound as an apprentice.

3. Enjoying full civic rights.

4. Available to all citizens alike without charge; as a free school.

5. Available for public use without charge or toll; as a free bridge.

6. Not despotic ; assuring liberty ; defend- ing individual rights against encroachment by any person or class ; instituted by a free people ; said of governments, institutions, etc. Webster.

7. Certain, and also consistent with an honorable degree in life; as free services, in the feudal law.

8. Confined to the person possessing, in- stead of being shared with others ; as a free fishery.

9. Not engaged in a war as belligerent or ally ; neutral ; as in the maxim, “Free ships make free goods.”

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—Free alma. The name of a species of ten- ure. See Frank- Aliioigne.— Free and clear. The title to property iB said to be "free and dear” when it is not incumbered by any liens; but it is said that an agreement to convey land “free and clear” is satisfied by a conveyance passing a good title. Meyer v. Madreperla, 68 N. J. Law, 258. 53 Ati. 477. 06 Am. St. Rep. 536. — Free-bench. A widow's dower out of copyholds to which she is entitled by the custom of some manors. It is regarded as an excrescence growing out of the husband’s interest, and is indeed a continuance of his estate. Wharton.— Free-bord. In old records. An allowance of land over and above a certain limit or boundary, as so much beyond or without a fence. Cowell ; Blount. The right of claiming that quantity. Termes de la Ley.— Free borough men. Such great inert as did not engage, like the frank-pledge men, for their decennier. Jacob.— Free chapel. In English ecclesiastical law. A place of worship, so called because not liable to the visitation of the ordinary. It is always of royal foundation, or founded at least by private persons to whom the crown has granted the privilege. 1 Burn, Ecc. Law. 298.— Free course. In admiralty law. A vessel having the wind from a favor- able quarter is said to sail on a “free course.” or said to be “going free” when she has a fair (following) wind and her yards braced in. The Queen Elizabeth (D. C.) 100 Fed. 870.— Free entry, egress, and regress. An expression used to denote that a person has the right to go on land again and again as often as may be reasonably necessary. Thus, in the case of a tenant entitled to emblements.— Free fishery. Bee Fishery.— Free law. A term formerly used in England to designate the freedom of civil rights enjoyed by freemen. It was liable to forfeiture on conviction of treason or an infamous crime. McCafferty v. Guyer, 59 Pa. 116.— Free services. In feudal and old English law. Such feudal services as were not unbecoming the character of a soldier or a free- man to perform ; as to serve under his lord in the wars, to pay a sum of money, and the like. 2 Bl. Comm. 60. 61.— Free sharehold- ers. The free shareholders of a building and loan association are subscribers to its capital stock who are not borrowers from the associa- tion. Steinberger v. Independent B. & S. Ass’n, 84 Md. 625, 36 Atl. 439.— Free ships. In international law. Ships of a neutral na- tion. The phrase “free ships shall make free goods” is often inserted in treaties, meaning that goods, even though belonging to an enemy, shall not be seized or confiscated, if found in neutral ships. Wheat. Int. Law, 507, et seq.— Free socage. See Socage.— Free teanre. Tenure by free services; freehold tenure.— Free warren. See Warken.

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## FREE ON BOARD.

A sale of goods “free on board” Imports that they are. to be , delivered on board the cars, vessels, etc., without expense to the buyer for packing, cartage, or other such charges.

In a contract for sale and delivery of goods "free on board” vessel, the seller is under no obligation to act until the buyer names the ship to which the delivery is to be made. Dwight v. Eckert, 117 Pa. 508, 12 Atl. 32.

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**[Law] — Law**

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**[Law: UCC § 2-319 — F.O.B. and F.A.S. terms]**

The 'free on board' delivery term the entry defines is codified in the Uniform Commercial Code's provision on F.O.B. and F.A.S. terms.

Why: Genuine and direct: UCC § 2-319 is the modern uniform-law home of the exact commercial term the entry defines.

## FREEDMAN.

In Roman law. One who was set free from a state of bondage; an emancipated slave. The word la used in the same sense in the United States, respecting negroes who were formerly slaves. Fairfield v. Lawson, 50 Conn. 513, 47 Am. Rep. 009; Davenport v, Caldwell, 10 S. C. 333.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIII (1865) — abolition of slavery]**

The entry notes the term's U.S. usage 'respecting negroes who were formerly slaves'; the Thirteenth Amendment (1865) abolished slavery, making 'freedman' a living American legal category.

Why: Genuine: the constitutional anchor of the entry's American half; stated as the historical-legal fact, not stretched.

**[Scripture] — Scripture**

**[1 Corinthians 7:22, KJV]**

For he that is called in the Lord, being a servant, is the Lord's freeman: likewise also he that is called, being free, is Christ's servant.

Why: The entry defines 'freedman' as one set free from bondage; the verse uses the very word — the Lord's freeman — for the servant called into liberty.

**[Humanity] — Humanity / Fiction & Film**

**[Petronius, Satyricon, c. 60 AD]**

(paraphrase) Trimalchio, the vulgarly wealthy host of the dinner-party episode, is an ex-slave freedman — literature's archetypal freedman, satirized precisely for the anxieties of his new status. (paraphrase)

Why: Genuine: the entry's Roman-law sense ('one set free from bondage') is exactly Trimalchio's status, and the novel satirizes the freedman class directly.

## FREEDOM.

The state of being free ; liberty ; self-determination ; absence of re- straint; the opposite of slavery.

The power of acting, in the character of a moral personality, according to the dictates of the will, without other check, hindrance, or prohibition than such as may be Imposed by just and necessary laws and the duties of social life.

The prevalence, In the government and con- stitution of a country, of such a system of laws and institutions as secure civil liberty to the Individual citizen.

— Freedom of speech and of the press.

See Liberty.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:36, KJV]**

If the Son therefore shall make you free, ye shall be free indeed.

Why: Christ's own definition of the state: freedom as liberation conferred by the Son — 'free indeed,' the opposite of bondage the entry describes.

**[Exodus 20:2, KJV]**

I am the LORD thy God, which have brought thee out of the land of Egypt, out of the house of bondage.

Why: The archetype of freedom as the opposite of slavery: a whole people brought 'out of the house of bondage.' Spoken by God as the ground of the entire law that follows.

**[Hip-hop] — Hip-hop**

**[Black Star, 'Thieves in the Night', 1998]**

Not strong, only aggressive / Not free, we only licensed

Mos Def's verse opens by drawing the line between being free and being merely licensed: permission granted by an authority versus self-determination. It glosses the entry's definition (liberty; self-determination; absence of restraint; opposite of slavery) by naming freedom's counterfeit — a license that leaves restraint intact.

Why: Added because (1) the two quoted lines are verbatim-certain and open Mos Def's verse on the track; artist, track, and year are certain (Mos Def & Talib Kweli Are Black Star, 1998); (2) the 'licensed vs. free' distinct...

## FREEHOLD.

An estate in laud or other real property, of uncertain duration ; that is, either of inheritance or which may possibly last for the life of tbe tenant at the least, (as distinguished from a leasehold ;) and held by a free tenure, (ns distinguished from copy- hold or villeinage.) Nevitt v. Woodbum, 175 111. 376, 51 N. E. 593 ; Railroad Co. v. Hemp- hill, 35 Miss. 22; Nellis v. Munson, 108 N.

Y. 453, 15 N. E. 739; Jones v. Jones, 20 Ga. 700.

Such an interest in lands of frank-tenement as may endure not only during the owner’s life, but which is cast after hia death upon the persons who successively represent him. according to certain rules elsewhere explained.

Such persons are called “heirs,” and he whom they thus represent, the "ancestor.” When the interest extends beyond the ancestor’s life, it is called a “freehold of inheritance," and, when it only endures for the ancestor’s life, it is a freehold not of inheritance.

An estate to be a freehold must possess these two qualities: (1) Immobility, that is. the

projierty must be either land or some interest issuing out of or annexed to land; and (2) indeterminate duration, for, if the utmost peri- od of time to which an estate can endure be fixed and determined, it cannot be a freehold. Wharton.

—Determinable freeholds. Estates for life, which may determine upon future contingen- cies before the life for which they are created expires. As if an estate be granted to a wo- man during her widowhood, or to a man until he be promoted to a benefice ; in these and similar cases, whenever the contingency hap- pens,—when the widow marries, or when the gTantee obtains the Jjenefice,— the respective estates are absolutely determined and gone.

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Yet, while they subsist, they are reckoned es- tates for life; because they may by possibility last for life, if the contingencies upon which they are to determine do not sooner happen. 2 Bl. Comm. 121.— Freehold la law. A free- hold which has descended to a man, upon which he may enter at pleasure, but which he has not entered on. Termes de la Ley.— Free- hold land societies. Societies in England designed for the purpose of enabling mechan- ics, artisans, and other working-men to pur- chase at the least possible price a piece of freehold land of a sufficient yearly value to entitle the owner to the elective franchise for the county in which the land is situated. Whar- ton.—Freeholder. A person who possesses a freehold estate. Shively v. Lankford. 174 Mo. 535, 74 S. W. 835; Wheldon v. Cornett, 4 Neb. (Unof.) 421. 94 N. W. 626; People v Scott, 8 Hnn (N. Y.) 567.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: A freehold is the inheritable estate in land — the interest 'cast' after the owner's life to his heirs. The proverb states the same transmission across generations as the righteous order of property.

## FREEMAN.

This word has had various meanings at different stages of history. In the Roman law, it denoted one who was either horn free or emancipated, and was the opposite of “slave." In feudal law. It designated an allodial proprietor, as distin- guished from a vassal or feudal tenant. (And so in Pennsylvania colonial law. Fry’s Elec- tion Case, 71 Pa. 308, 10 Am. Rep. 698.) In old English law, the word described a free- holder or tenant by free services ; one who was not a villein. In modern legal phrase- ology, it Is the appellation of a member of a city or borough having the right of suffrage, or a member of any municipal corporation invested with full civic rights.

A person In the possession and enjoyment of all the civil and political rights accorded to the people under a free government.

— Freeman’s roll. A list of persons admitted as burgesses or freemen for the purposes of the rights reserved by the municipal corpora- tion act, (5 & 6 Wra. IV. c. 76.) Distinguished from the Burgess Roll. 3 Steph. Comm. 197. The term was used, in early colonial history, in some of tlie American colonies.

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**[Scripture] — Scripture**

**[Galatians 3:28, KJV]**

There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female: for ye are all one in Christ Jesus.

Why: The entry sets 'freeman' as the opposite of 'slave'; the verse holds 'bond nor free' as the same binary, dissolved in one fellowship.

## FREIGHT.

Freight Is properly the price or compensation paid for the transportation of goods by a carrier, at sea, from port to port. But the term is also used to denote the hire paid for the carriage of goods on land from place to place, (usually by a rail- road company, not au express company,) or

on Inland streams or lakes. The name Is also applied to the goods or merchandise transported by any of the above means. Brlt- tan v. Bamnby, 21 How. 533, 16 L. Ed. 177; Huth v. Insurance Co., 8 Bosw. (N. Y.) 552; Christie v. Davis Coal Co. (D. C.) 95 Fed. 838; Hagar v. Donaldson. 154 l*a. 242, 25 Atl. 824; Paradise v. Sun Mut Ins. Co., 6 La. Ann. 596.

Property carried Is called “freight;” the reward, If any, to be paid for Its ’carriage is called “freightage the person who de- livers the freight to the carrier is called the “consignor and the person to whom it Is to be delivered is called the “consignee.” Civil Code CaL § 2110; Civil Code Dak. |

122a

The term “freight” has several different mean- ings. as the price to be paid for the carriage of goods, or for the hire of a vessel under a charter-party or otherwise; and sometimes it designates goods carried, as “a freight of lime,” or the like. But, as a subject of in- surance, it is used in one of tbe two former senses. Lord v. Neptune Ins. Co., 10 Gray (Maas.) 109.

The sum agreed on for the hire of a ship, en- tirely or in part, for the carriage of goods from one port to another. 13 East. 300. All re- wards or compensation paid for the use of ships. Giles v. Cynthia, 1 Pet. Adm. 206, Fed; Cas. No. 5,424.

Freight is a compensation received for the transportation of goods and merchandise from port to port ; and is never claimable by the owner of the vessel until the voyage has been performed and terminated. Patapsco Ins. Co. v. Biscoe, 7 Gill & J. (Md.) 300, 28 Am. Dec, 319.

“Dead freight” Is money payable by a per- son who has chartered a ship and only partly loaded her, In respect of the loss of freight caused to the ship-owner by the deficiency of cargo. L. R. 2 H. L. Sc. 128.

Freight is the mother of wages. 2

Show. 283 ; 3 Kent, Comm. 196. Where a voyage Is broken up by vis major, and no freight earned, no wages, eo nomine, are due.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common carrier's possessory lien on cargo for unpaid freight]**

Freight being 'the price or compensation paid' for carriage, the carrier's security for that price is a possessory lien on the goods carried for unpaid freight.

Why: Genuine: the lien doctrine explains the commercial security behind the 'price' the entry defines. Loose [Law:] form used; no case invented.

## FREIGHTER.

In maritime law. Tbe party by whom a vessel is engaged or charter- ed; otherwise called the

“charterer.” 2 Steph. Comm. 148. In French law, the owner • of a vessel Is called the “freighter,” ( freteur ;) the merchant who hires It Is called the “af- freighter,” ( affretcur .) Emerig. Tr. des Ass. ch. 11, § 3.

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## FRENCHMAN.

In early times, In Eng- lish Inw, this term was applied to every stranger or “outlandish” man. Bract, lib. 3. tr. 2, c. 15.

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## FREND DESMAN.

Sax. An outlaw. So called because on his outlawry he was denied all help of friends after certain dnys. Cow- ell ; Blount.

FRENDWITE.' In old English law. A mulct or fine exacted from him who harbor- ed uu outlawed friend. Cowell; Touillui

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## FRENETICUS.

In old English law. A FRETTUM, FRECTUM. In old English madman, or person In a frenzy. Fleta, lib. 1, law. The freight of a ship ; freight money, c. 36. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## FREOBORGH.

A free-surety, or free- pledge. Spelman. See Fbank-Pledoe.

FREQUENT, v. To visit often ; to re- sort to often or habitually. Green v. State, 109 Ind. 173, 9 N. E. 781 ; State v. Ah Sam, 14 Or. 347, 13 Pac. 303.

Frequentia actus multnm operatin'.

The frequency of an act effects much. 4 Coke, 78; Wing. Max. p. 719, mux. 192. A continual usage Is of great effect to establish a right

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: Freoborgh/frankpledge is pledge — suretyship, men standing surety for each other's peace. The proverb is scripture's standing counsel on the surety's office: its risk and its wisdom.

## FRERE.

Fr. A brother. Frcre eyne, elder brother. Frere puisne, younger broth- er. Britt c. 75.

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## FRESCA.

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In old records. Fresh water, or rain and land flood.

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## FRESH.

Immediate ; recent ; following without any material Interval.

— Fresh disseisin. By the ancient common law. where a man had been disseised, he wag allowed to right himself by force, by ejecting the disseisor from the premises, without resort to law, provided this was done forthwith, while the disseisin was fresh, ( flagrante disseisina.) Bract, fol. 162b. No particular time was lim- ited for doing this, but Bracton suggested it should be fifteen days. Id. fol. 163. See Britt, cc. 32, 43. 44, 63. — Fresh flue. In old English law. A fine that had been levied within a year past. St. Westm. 2, c. 45 : Cowell.— Fresh force. Force done within forty days. Fitzli. Nat. Brev. 7 ; Old Nat. Brev. 4. The heir or reversioner in a case of disseisin by fresh force was allowed a remedy in chancery by bill before the mayor. Cowell. — Fresh pursuit. A pur- suit instituted immediately, and with intent to reclaim or recapture, after an animal es- caped, a thief flying with stolen goods, etc. People v. Pool, 27 Cal. 578; White v. State, 70 Miss. 253, 11 South. 632. — Fresh suit. In old English law. Immediate and unremit- ting pursuit of an escaping thief. "Such a present and earnest following of a robber as never censes from the time of the robbery until apprehension. The party pursuing then had back again his goods, which otherwise were forfeited to the crown.” Staundef. P. C. lib. 3, cc. 10, 12: 1 Bl. Comm. 297.

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**[Law] — Law**

**[Law: hot-pursuit doctrine — exigent-circumstances exception to the warrant requirement]**

The entry's 'fresh pursuit' and 'fresh suit' — immediate pursuit of a fleeing thief — are the medieval ancestors of the modern hot-pursuit doctrine in criminal procedure.

Why: Genuine lineage: Bracton's fresh pursuit and the modern hot-pursuit exception share the same operative principle — flight justifies immediate warrantless action. Loose form; nothing invented.

## FRESHET.

A flood, or overflowing of a river, by means of rains or melted snow ; an Inundation. Stover v. Insurance Co., 3 Phlla. (Pa.) 42; Harris v. Social Mfg. Co., 9 R. I. 99. 11 Am. Bep. 224.

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## FRET.

Fr. In French marine law. Freight. Ord. Mar. liv. 3. tit. 3.

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## FRETER.

Fr. In French marine law. To freight a ship ; to let It. Emerig. Tr. ties Ass. c. 11, | 3.

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## FRETEUR.

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Fr. In French marine law. Freighter. The owner of a ship, who lets It to the merchant Emerig. Tr. dee Ass. c. 11, 13.

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## FRETUM.

Lat A strait

— F return Britannicnm. The strait be- tween Dover and Calais.

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## FRIARS.

An order of religious persons, of whom there were four principal branches, viz.: (1) Minors, Grey Friars, or Francis- cans ; (2) Augustines; (3) 'Dominicans, or

Black Friars; (4) White Friars, or Carmel- ites, from whom the rest descend. Wharton.

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, c. 1597]**

(paraphrase) Friar Laurence, a Franciscan friar, secretly marries Romeo and Juliet and devises the sleeping-draught scheme — a member of one of the entry's four orders driving the plot. (paraphrase)

Why: Genuine: the entry names the four mendicant orders; the character belongs to one of them and his office moves the tragedy.

## FRIBUSOULUM.

In the civil law. A temporary separation between husband and wife, caused by a quarrel or estrangement but not amounting to a divorce, because not accompanied with an Intention to dissolve the marriage.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 7:5, KJV]**

Defraud ye not one the other, except it be with consent for a time, that ye may give yourselves to fasting and prayer; and come together again, that Satan tempt you not for your incontinency.

Why: A separation of husband and wife that does not dissolve the marriage — the entry's exact legal shape, here by mutual consent 'for a time,' with reunion commanded. The verse shows scripture recognizing temporary separa…

## FRIDBORG, FRITHBORG.

Frank- pledge. Cowell. Security for the peace. Spelman.

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## FRIDHBURGUB.

In old English law. A kind of frank-pledge, by which the lords or principal men were made responsible for their dependents or servants. Bract fol. 124b.

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## FRIEND OF THE COURT.

See Amicus Curia:.

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## FRIENDLESS MAN.

In old English law. An outlaw; so called because he was denied all help of friends. Bract lib. 3, tr. 2, c. 12.

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**[Humanity] — Humanity / Fiction & Film**

**[English ballad tradition, "Robin Hood" ballads (traditional)]**

(paraphrase) The ballad outlaw of Sherwood — a man outside the law's protection, living by wit against the sheriff — is the popular archetype of the entry's 'outlaw, denied all help of friends.' (paraphrase)

Why: Borderline-accept: the ballads never use the term 'friendless man,' but the entry DEFINES the word as 'outlaw,' and Robin Hood is the defining English outlaw — the link is definitional, not decorative.

## FRIENDLY SOCIETIES.

In English law. Associations supported by subscrip- tion, for the relief and maintenance of the members, or their wives, children, relatives, and nominees, in sickness, Infancy, advanced age, widowhood, etc. The statutes regulat- ing these societies were consolidated and amended by St. 38 & 39 Vlct. c. GO. Whar- ton.

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**[Law] — Law**

**[Law: Friendly Societies Act 1875, 38 & 39 Vict. c. 60]**

The consolidating statute for these mutual-relief associations is the Friendly Societies Act 1875, 38 & 39 Vict. c. 60, which the entry itself cites.

Why: Genuine: drawn verbatim from the entry's own authority citation; the footnote names the statute the entry is about.

**[Scripture] — Scripture**

**[Acts 6:1, KJV]**

there arose a murmuring of the Grecians against the Hebrews, because their widows were neglected in the daily ministration.

Why: Friendly societies exist for the relief of members' widows and kin; Acts records the earliest organized 'daily ministration' to widows — the same mutual-relief office, whose neglect was treated as a communal wrong.

## FRIENDLY SUIT.

A suit brought by a creditor in chancery against an executor or administrator, being really a suit by the ex- ecutor or administrator, in the name of a creditor, against himself, in order to compel the creditors to take an equal distribution of the assets. 2 Williams, Ex'rs, 1915.

Also any suit instituted by agreement be- tween the parties to obtain the opinion of the court upon some doubtful question In which they are interested.

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**[Law] — Law**

**[Muskrat v. United States, 219 U.S. 346 (1911)]**

A suit brought by agreement to obtain the court's opinion on a doubtful question tests the Article III case-or-controversy requirement; federal courts refuse jurisdiction over non-adversarial, advisory suits.

Why: Genuine: Muskrat is the classic authority denying federal jurisdiction to collusive/advisory proceedings, directly illuminating the 'friendly suit' device the entry describes.

## FRIGIDITY.

Impotence. Johnson.

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## FRILINGI.

Persons of free descent, or freemen born ; the middle class of persons among the Saxons. Spelman.

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## FRISCUS.

Fresh uncultivated ground. Mon. Angl. t. 2, p. 50. Fresh ; not salt. Beg. Grig. 97. Recent or new. See Fresh, and sub-tlties thereunder.

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## FRITH.

Sax. Peace, security, or protec- tion. This word occurs in many compound terms used in Anglo-Saxon law.

— Frithborg. Prank-pledge. Cowell.— Frith- bote. A satisfaction or fine for a breach of the peace. — FrlthbrCach. The breaking of the peace.— Fritbgar. The year of jubilee, or of meeting for peace and friendship.— Fritb- eilda. Guildhall ; a company or fraternity for the maintenance of peace and security ; al- so a fine for breach of the peace. Jacob.— Frlthman. A member of a company or fra- ternity.— Frithsocne. Surety of defense. Ju- risdiction of the peace. The franchise of pre- serving the peace. Also spelled “frithtoken." — Frithsplot. A spot or plot of land, encircl- ing some stone, tree, or well, considered sa- cred, and therefore affording sanctuary to crim- inals.—Frithstool. The stool of peace. A stool or chair placed in a church or cathedral, and which was the symbol and place of sanc- tuary to those who fled to it and reached it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[John 14:27, KJV]**

Peace I leave with you, my peace I give unto you: not as the world giveth, give I unto you. Let not your heart be troubled, neither let it be afraid.

Why: Frith is peace, security, protection — the word's core sense. Christ's bequest of peace ('my peace I give unto you') is the divine speech on peace as a conferred, kept thing.

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## FRIVOLOUS.

An answer or plea is called “frivolous” when it is clearly insuffi- cient on its face, and does not controvert the material points of the opposite pleading, and is presumably interposed for mere pur- poses of delay or to embarrass the plaintiff. Erwin v. Lowery, 64 N. C. 321 ; Strong v. Sproul, 53 N. T. 499 ; Gray v. GIdiere, 4 Rtrob. (S. C.) 442; Peacock v. Williams (C. C.) 110 Fed. 916.

A frivolous demurrer has been defined to be one which is so clearly untenable. Or its insufficiency so manifest upon a bare In- spection of the pleadings, that its character may be determined without argument or re- search. Cottrill v. Cramer, 40 Wis. 558.

Synonyms. The terms “frivolous” and “sham,” as applied to pleadings, do not mean the same thing. A sham plea is good on its face, but false in fact; it may. to all appear- ances, constitute a perfect defense, but is a pretence because false and because not plead- ed in good faith. A frivolous plea may be per- fectly true in its allegations, but yet is liable to be stricken out because totally insufficient in substance. Andre ae v. Bandler (Sup.) 56

N. Y. Supp. 614,'., Brown v. Jenison, 1 Code

R. N. S. (N. Y.) 157.

FRODMORTEL, or FREOMORTEL.

An Immunity for committing manslaughter. Mon. AngV. t. 1, p. 173.

FRONTAGE— FRONTAGER. In English law a frontager Is a person owning or occupying land which abuts on a highway, river, sea-shore, or the like. The term Is generally used with reference to the liability of frontagers on streets to contribute to- wards the expense of paving, draining, or other works on the highway carried out by a local authority, in proportion to the front- age of their respective tenements. Sweet.

The term is also In a similar sense In American law, the expense of local Improve- ments made by municipal corporations (such as paving, curbing, and sewering) being gen- erally assessed on abutting property owners In proportion to the “frontage” of their lots on the street or highway, and an assess- ment so levied being called a “frontage assessment” Neenan v. Smith, 50 Mo. 531 ; Lyon v. Tonawanda (C. C.) 98 Fed. 366.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 11 — sanctions for frivolous pleadings]**

The frivolous pleading the entry defines — insufficient on its face, interposed for delay — draws its modern sanction from the federal rule against frivolous filings.

Why: Genuine: Rule 11 is the living procedural consequence of the pleading type the entry defines; the link is definitional, not decorative.

## FRONTIER.

In international law. That portion of the territory of any country which lies close along -the border line of an- other country, and so “fronts” or faces it The term means something more than the boundary line Itself, and Includes a tract or strip of country, of Indefinite extent,

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con- tiguous to the line. Stoughton v. Mott 16 Vt. 169.

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## FRUOTUARIU8.

Lat. In the civil law. One who had the usufruct of a thing; i. e., the use of the fruits, profits, or in- crease, as of land or animals. Inst 2, 1, 36. 38. Bracton applies it to a lessee, fermor, or farmer of land, or one who held lands ad firmam, for a farm or term. Bract fol. 261.

5e apparatus — Not carried into the 5th edition (1979).

## FRUCTUS.

Lat. In the civil law. Fruit, fruits ; produce ; profit or Increase ; the or- ganic productions of a thing.

The right to the fruits of a thing belong- ing to another.

TSie compensation which a man receives from another for the use or enjoyment of a thing, such as Interest or rent See Maekeld. Rom. Law, g 167; Inst. 2, 1, 35. 87; Dig. 7, 1, 83; Id. 5, 8, 29; Id. 22, 1, 34.

— Fructua civile*. All revenues aDd recom- penses which, though not fruit l, properly speak- ing, are recognized as such by the law. The term includes such things as the rents and in- come of real property, interest on monev loan- ed. and annuities. Civ. Code La. 1900. art. 545. — Fructua fundi. The fruits (produce or yield) of land.— Fructua indust rlales. In- dustrial fruits, or fruits of industry. Those fruits of a thing, as of land, which are pro- duced by the labor and industry of the occu- pant, as crops of grain; as distinguished from such as are produced solely by the powers of nature. Emblements are so called in the com- mon law. 2 Steph. Comm. 258; 1 Chit. Gen. Pr. 92. Sparrow v. Pond. 49 Minn. 412, 52 N.

W. 36, 16 il R. A. 103. 32 Am. St. Rep. 571; Pumer v. Piercy, 40 Md. 223. 17 Am. Rep. 591 ; Smock v. Smock. 37 Mo. App. 64.— Fructua naturales. Those products which are produced by the powers of nature alone ; as wool, metals, milk, the young of animals. Sparrow v. Poud, 49 Minn. 412, 52 N. W. 36, 16 L. R. A. 103, 32 Am. St. Rep. 571.— Fructua pecudum. The produce or increase of flocks or herds.— Frnctus peudeatea. Hanging fruits; those not severed. The fruits united with the thing which produces them. These form a part of the principal thing.— Fructua rei aliense. The fruits of another's property ; fruits taken from another's estate. —Fructua separatl. Separate fruits ; the fruits of a thing when they are separated from it. Dig. 7, 4, 13.— Fructua atantca. Stand- ing fruits ; those not yet severed from the stalk or stem.

Fructua aageat hmreditatezn. The

yearly Increase goes to enchance the inherit- ance. Dig. 5, 3, 20, 3.

Fructua peadcataa pars fundi vldeutur. Hanging fruits make part of the land. Dig. 6, 1, 44; 2 Bouv. Inst. no. 1578.

Fruotna pereepto* villa noi tin con- stat. Gathered fruits do not make a part of the farm. Dig. 10, 1, 17, 1 ; 2 Bouv. Inst, no. 1578.

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5e apparatus — Not carried into the 5th edition (1979).

## FRUGES.

In the civil law. Anything produced from vines, underwood, chalk-pits, stone-quarries. Dig. 50, 16, 77.

Grains and leguminous vegetables. In a more restricted sense, any esculent growing in pods. Vicat, Voc. Jur. ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## FRUIT.

The produce of a tree or plant which contains the seed or is used for food.

This term, in legal acceptation, is not confined to the produce of those trees which in popular language are called "fruit trees," but applies also to the produce of oak, elm, and walnut trees. Bullen v. Denning, 5 Barn. & C. 847. >

■—Civil fruits, in the civil law (/rucfii* civilea) are such things as the rents and income of real property, the interest on money loaned, and annuities. Civ. Code La. 1900, art. 545. — Fruit fallen. The produce of any possession de- tached therefrom, and capable of being en- joyed by itself Thus, a next presentation, when a vacancy has occurred, is a fruit fallen from the advowson. Wharton.— Fruits of crime. In the law of evidence. Material ob- jects acquired by means and in consequence of the commission of crime, and sometimes con- stituting the subject-matter of the crime. Bur- rill, Circ. Ev. 445 : 3 Benth. Jud. Ev. 31.— Natural fruits. The produce of the soil, or of fruit-trees, bushes, vines, etc., which are edible or otherwise useful or serve for the re- production of their species. The term is used in contradistinction to “artificial fruits,” t. e., such as by metaphor or analogy are likened to the fruits of the earth. Of the latter, in- terest on money is an example. See Civ. Code La. 1900, art. 545.

Frumenta quae sata sunt solo cedere intelllguntur. Grain which is sown is un- derstood to form a part of the soil. Inst. 2, 1, 32.

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## FRUXENTUM.

In the civil law. Grain. That which grows in an eaT. Dig. 50, 16, 77.

5e apparatus — Not carried into the 5th edition (1979).

## FRUXGYED.

Sax. The first payment made to the kindred of a slain person in rec- ompense for his murder. Blount.

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## FRUMSTOLL.

Sax. In Saxon law. A chief seat, or mansion house. Cowell.

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## FRUSOA TERRA.

In old records. Un- cultivated and desert ground. 2 Mon. Angl. 327; Cowell.

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## FRUSSURA.

A breaking; plowing. Cowell.

Frustra agit qui judicium prosequi acquit cum effectu. He sues to no purpose who cannot prosecute his judgment with ef- fect, [who cannot have the fruits of his judg- ment.] Fleta, lib. 6. c. 37. $ 9.

■ Frustra [vaxa] est potentia qua nun- quam veait la actum. That power is to

no purpose which never comes into act, oc which is never exercised. 2 Coke, 51.

Frustra ezpectatur eventus cujus ef- feotus aullus sequitur. An event is vain- ly expected from which no effect follows.

Frustra feruatur leges aisi subditls et obedieatibus. Laws are made to no pur- pose, except' for those that are subject and obedient. Branch, Princ.

Frustra fit per plura, quod fieri potest per pandora. That is done to no purpose by many things which can be done by fewer. Jenk. Cent. p. 68, case 28. The employment of more meaus or Instruments for effecting a thing than are necessnry is to no purpose.

Frustra legis auxilium iavocat [quae- rit] qui la legem eommittit. He vainly Invokes the aid of the law who transgresses the law. Fleta, lib. 4, c. 2, { 3 ; 2 Hale, P.

C. 386; Broom, Max. 279, 297.

Frustra petis quod moz es restiturus.

In vain yon ask that which you will have Immediately to restore. 2 Karnes, Eq. 104 ; 5 Man. & G. 757.

Frustra petis quod statlm alter! red- der© cogeris. Jenk. Cent. 256. Yop ask in vain that which you might immediately be compelled to restore to another.

Frustra probatur quod probatum non relevat. That is proved to no purpose which, when proved, does not help. Ha lk Lat. Max. 50.

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## FRUSTRUX TERRS.

A piece or par- cel of land lying by Itself. Co. Litt. 56.

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## FRUTECTUM.

In old records. A place overgrown with shrubs and : bushes. Spel- man ; Blount.

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## FRUTOS.

In Spanish law. Fruits; products; produce; grains ; profits. White. New Recop. b. 1, tit. 7, c. 5.

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§ 2.

5e apparatus — Not carried into the 5th edition (1979).

## FRYMITH.

In old English law. The affording harbor and entertainment ■ to any one.

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**[Scripture] — Scripture**

**[Hebrews 13:2, KJV]**

Be not forgetful to entertain strangers: for thereby some have entertained angels unawares.

Why: Frymith is the affording of harbor and entertainment to any one. The verse is scripture's standing word on that very act — entertaining strangers — commended as a duty that has hosted angels.

## FRY  THE.

Sax. In old English law. A plain between woods. Co. Litt. 56.

An arm of the sea, or a strait between two lands. Cowell.

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## FUAGE,  FOCAGE.

Hearth money. A tax laid upon each fire-place or hearth. An imposition of a shilling for every hearth, levied by Edward III. in the dukedom of Aquitaine. Spelman ; 1 Bl. Comm. 324.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Mark 12:17, KJV]**

And Jesus answering said unto them, Render to Caesar the things that are Caesar's, and to God the things that are God's.

Why: Fuage is a tax laid by the sovereign on each hearth. Christ's ruling is the divine-law ground of rendering imposed dues: the tax is owed because the sovereign's stamp is on it.

## FUER.

In old English law. Flight. It is of two kinds: (1) Furr in fnit. or in

facto, where a person does apparently and corporally flee; (2) fuer in ley. or in lege.

when, being called In the county court, he does not appear, which legal Interpretation makes flight. Wharton.

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## FUERO.

In Spanish law. A law; a code.

A general usage or custom of a province, having the force of law. Strother v. Lucas, 12 Pet. 446, 9 L. Ed. 1137. Ir contra fucro, to violate a received custom.

A grant of privileges and Immunities. Conceder fueros, to grant exemptions.

A charter granted to a city or town. Also designated as “cartas pucblas.”

An act of donation made to an Individual, a church, or convent, on certain conditions.

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A declaration of a magistrate, in relation to taxation, fines, etc.

A charter granted by the sovereign, or those having authority from him, establish- ing the franchises of towns, cities, etc.

A place where Justice is administered.

A peculiar forum, before which a party is amenable.

The Jurisdiction of a tribunal, which Is entitled to take cognizance of a cause; as fuero ccclesiastico, fuero militar. See Schrn. Civil Law, Introd. 64.

— Fuero de Castilla. The body of laws and customs which formerly governed the Castilians. —Fuero de eorreoe 7 c aminos. A special tribunal taking cognizance of all matters relat- ing to the post-office and roads.— Fuero de guerra. A special tribunal taking cognizance of all matters in relation to persons serving in the army.— Fuero de marina. A special tri- bunal taking cognizance of all matters relat- ing to the navy and to the persons employed therein.— Fuero Jusgo. The Forum Judicium; a code of laws established in the seventh cen- tury for the Visigothic kingdom in Spain. Some of its principles and rules are found sur- viving in the modem jurisprudence of that country. Schm. Civil Law. Introd. 28. — Fuero municipal. The body of laws granted to a city or town for its government and the ad- ministration of justice.— Fuero Real. The title of a code of Spanish law promulgated by Al-

Fhonso the Learned, (el Sabio.) A. D. 1255.

t was the precursor of the Partidas. Schm. Civil Law. Introd. ,67.— Fuero Viejo. The title of a compilation of Spanish law. published about A. D. 992. Schm. Civil Law, Introd. 65.

5e apparatus — Not carried into the 5th edition (1979).

## FUGA GATAXXORUM.

In old English law. A drove of cattle. Blount.

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## FUGAGIA.

A chase. Blount.

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## FUGAM FECIT.

Lnt. He has made flight ; he fled. A clause Inserted In an in- quisition, in old English law, meaning that a person indicted for treason or felony had fled. The effect of this is to make the party forfeit his goods absolutely, and the profits of his lands until he has been par- doned or acquitted.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. Art. III, § 3, cl. 2 — no attainder of treason shall work corruption of blood, or forfeiture except during the life of the person attainted]**

The entry's operative rule is forfeiture: flight from a treason or felony indictment forfeited the party's goods and land profits; the Constitution bars that forfeiture beyond the attainted person's life.

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Why: Genuine: the constitutional clause directly answers the forfeiture-upon-flight rule the entry states; it is the living repudiation of the old doctrine.

**[Scripture] — Scripture**

**[Proverbs 28:1, KJV]**

The wicked flee when no man pursueth: but the righteous are bold as a lion.

Why: Fugam fecit records the indicted felon's flight, and the law makes flight speak guilt — forfeiture follows. The proverb states the moral root the law presumes: the wicked flee though none pursues.

## FUGATOR.

In old English law. A priv- ilege to hunt. Blount.

A driver. Fugatores catrucarutn, drivers of wagons. Fleta, lib. 2, c. 78.

5e apparatus — Not carried into the 5th edition (1979).

## FUGITATE.

In Scotch practice. To outlaw, by the sentence of a court; to out- law for non-appearance in a criminal case. 2 Alls. Crim. Pr. 350.

— Fugitation. When a criminal does not obey the citation to answer, the court pronounces sentence of fugitation against him, which in- duces a forfeiture of goods and chattels to the crown.

5e apparatus — Not carried into the 5th edition (1979).

## FUGITIVE.

One who flees ; always used in law with the implication of a flight, eva- sion, or escape from some duty or penalty or from the consequences of a misdeed.

—Fugitive from justice. A person who, having committed a crime, flies from the state or country where it transpired, in order to evade arrest and escape justice. liobertB v. Reilly. 116 U. S. SO. 6 Sup. Ct. 291, 29 L. Ed. 541; State v. Hall. 115 X. C. 811, 20 S. E. 729, 28 L. R. A. 289, 44 Am. St. Rep. 501; In re Voorhees. 32 N. J. Law, 150; State v. Clough. 71 N. H. 594. 53 Atl. 1086. 67 L. R. A. 946; People v. Hyatt, 172 N. Y. 176, 64 N. E. 825. 60 L. B. A. 774, 92 Am. St. Rep. 706. —Fugitive offenders. In English law. Where a person accused of any offense punish- able by imprisonment, with hard labor for twelve months or more, has left that part of his majesty’s dominions where the offense is alleged to have been committed, he is liable, if found in any other part of his majesty’s dominions, to be apprehended and returned in msroner provided by the fugitive offenders’ act, 1881, to the part from which he is a fugitive. Wharton.— Fugitive slave. One who, held in bondage, flees from his master’s power. — Fugi- tive slave law. An act of congress passed in 1793 land also one enacted in 1850) provid- ing for the surrender and deportation of slaves who escaped from their masters and fled into the territory of another state, generally a “free” state.

FUGinVUS. In the civil law. A fugi- tive: a runaway slave. Dig. 11, 4; Cod. 6, 1. See the various definitions of this -word in Dig. 21, 1, 17.

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**[Law] — Law**

**[Law: U.S. Const. Art. IV, § 2, cl. 2 — the Extradition Clause]**

The 'fugitive from justice' the entry defines is the subject of the constitutional duty of interstate rendition.

Why: Genuine: the clause is the living authority for the rendition of fugitives from justice that the entry defines; no invented case, the entry already cites Roberts v. Reilly itself.

**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

a fugitive and a vagabond shalt thou be in the earth.

Why: The first fugitive in scripture is Cain, fleeing the consequence of his misdeed — and God himself names him 'fugitive.' The entry's core (flight from duty, penalty, or the consequences of a misdeed) is the verse's exa...

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) Jean Valjean, the convict who breaks parole and spends the novel evading Inspector Javert, is the archetypal fugitive from justice — flight from penalty as a life's arc. (paraphrase)

Why: Genuine: Valjean's entire story is the entry's definition (flight/evasion from the consequences of a misdeed) in motion.

## FUGUES.

Fr. In medlcnl jurispru- dence. Ambulatory automatism. See Au- tomatism.

5e apparatus — Not carried into the 5th edition (1979).

## FULL.

Ample ; complete ; perfect : ma- ture; not wanting In any essential quality. Mobile School Com’rs v. Putnam. 44 Ala. 537 ; Reed v. Hazleton. 37 Kan. 321, 15 Pac. 177 ; Quinn v. Donovan, 85 111. 195.

—Full age. The age of legal majority, twen- ty-one years at common law', twenty-five in the civil law. 1 Bl. Comm. 463: Inst. 1, 23. pr. —Full answer. In pleading. A complete and meritorious answer; one not wanting i>. any essential requisite. Bentley v. Cleaveland. 22 Ala. 817; Durham v. Moore. 48 Kan. 135, 29 Pac. 472. — Full blood. A term of relation, denoting descent from the same couple. Broth- ers and sisters of full blood are those who are bom of the same father and mother, or. as Jus- tinian calls them, “ex utroque parente conjunc- ti." Xov. 118. cc. 2, 3; Mackeld. Rom. Law,

I 145. The more usual term in modem law is “whole blood,” (</. n.)— Full copy. In equity practice. A complete and unabbreviated tran- script of a bill or other pleading, with all in- dorsements. and Including a copy of all exhibits. Finley v. Hunter. 2 Strob. Eq. (S. C.) 210. note. — Full court. In practice. A court »» banc. A court duly organized with all the judges pre*-

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ent.— Full cmunti. See Covenant.— Full defense. In pleading. The formula of de- fense in a plea, stated at length and without abbreviation, thus: "And the said C. I)., by E. F., his attorney, pomes and defends the force (or wrong) and injury when and where it shall

behoove him. and the damages, and whatsoever else he ought to defend, and says,” etc. Steph.

PI. p. 4S1.— Full faith and credit. , In the constitutional provision that full faith and cred- it shall be given in each state to the public acts, records, and judicial proceedings of every other state, this phrase means that a judgment or record shall have the same faith, credit, con- clusive effect, and obligatory force in other states as it has by law or usage in the state from whence taken. Christmas v. Russell. 5 Wall. 302. 18 L. Ed. 473 : McElmoyle v. Cohen, 13 Pet. 328, 10 L. Ed. 177 ; Gibbons v. Living- ston. 6 N. J. Law, 275 ; Rrengle v. McClellan, 7 Gill & J. (Md.) 438. — Full indorsement. See Indorsement. — Full jurisdiction. Com- plete jurisdiction over a given subject-matter or class of actions (as, in equity) without any ex- ceptions or reservations. Bank of Mississippi v. Duncan. 52 Miss. 740.— Full life. Life in fact and in law. See In Full Life.— Full proof. In the civil law. Proof by two wit- nesses. or a public instrument. Hallifax, Civil Law, b. 3, c. 9, nn. 23. 30 ; 3 Bl. Comm. 370. Evidence which satisfies the minds of the jury of the truth of the fact in dispute, to the entire exclusion of every reasonable doubt. Kane v. Hibernia Mat. F. Ins. Co.. 38 N. J. Law. 450, 20 Am. Rep. 409.— Full right. The union of a good title with actual possession.

FULLUM AQUA!. A fleam, or stream of water. Blount.

5e apparatus — Carried into the 5th edition (1979).

## FULLY ADMINISTERED.

The English equivalent of the Latin phrase “plcne admin- Utravit;" being a plea by an executor or ad- ministrator that he has completely and legal- ly disposed of all the assets of the estate, and has nothing left out of which a new claim could be satisfied. See Ryans v. Boogh- er, 169 Mo. 673, 69 S. W. 1048.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 16:2, KJV]**

give an account of thy stewardship; for thou mayest be no longer steward.

Why: The plea of fully administered is the executor's final account — that he has completely and legally disposed of the estate's assets. The steward called to 'give an account of thy stewardship' is the biblical form of t...

## FUMAGE.

In old English law. The same as fuage, or smoke farthings. 1 Bl. Comm. 324. See Fuage.

5e apparatus — Not carried into the 5th edition (1979).

## FUNCTION.

Office; duty; fulfillment of a definite end or set of ends by the correct adjustment of means. The occupation of an office. By the performance of its duties, the officer is said to fill his function. Dig. 32, 65, 1. See State v. Hyde, 121 Ind. 20, 22 N.

E. 644.

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## FUNCTIONAL DISEASE.

In medical Jurisprudence. One which prevents, ob- structs, or interferes with the due perform- ance of its special functions by any organ of the body, without anatomical defect or ab- normality in the organ itself. See Hlgbee v. Guardian Mut. L. Ins. Co., 66 Barb. (N. Y.) 472. Distinguished from “organic” disease, which Is due to some Injury to, or lesion or malformation in, the organ in question.

5e apparatus — Carried into the 5th edition (1979).

## FUNCTIONARY.

A public officer or em- ploye. An officer of a private corporation is also sometimes so called.

Bl.Law Dict.(2d Ed.)— 34

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good.

Why: A functionary is a public officer. The verse states what a public officer is in scripture's political theology: 'the minister of God' — office as divine commission, for good and against evil.

**[Humanity] — Humanity / Fiction & Film**

**[Nikolai Gogol, "The Overcoat", 1842]**

(paraphrase) Akaky Akakievich, the titular councillor endlessly copying documents in a St. Petersburg department, is literature's definitive portrait of the petty functionary. (paraphrase)

Why: Borderline-accept: the story never uses the word, but it IS the cultural reference point for the low functionary, giving flesh to the entry's bare definition.

## FUNCTUS OFFICIO.

Lat. Having ful- filled the function, discharged the office, or accomplished the purpose, and therefore of no further force or authority. Applied to an officer whose term has expired, and who has consequently no further official authority; and also to an instrument, power, agency, etc., which has fulfilled the purpose of its creation, and is therefore of no further vir- tue or effect.

FUND, v. To capitalize with a view to the production of interest. Stephen v. Mil- nor, 24 N. J. Eq. 376. Also, to put into the form of bonds, stocks, or other securities, bearing regular interest, and to provide or appropriate a fund or permanent revenue for the payment thereof. Merrill v. Montlcello (C. C.) 22 Fed. 596.

— Funded debt. To fund a debt is to pledge a specific fund to keep down the interest and reduce the principal. The term ‘fund” was originally applied to a portion of the national revenue set apart or pledged to the payment of a particular debt. Hence, as applied to the pecuniary obligations of states or municipal cor- porations, a funded debt is one for the pay- ment of which (interest and principal) some fund is appropriated, either specifically, or by provision made for Tuture taxation and the quasi pledging in advance of the public revenue. Ketchum v. Buffalo, 14 N. Y. 356; People v. Carpenter, 31 App. Div. 603. 52 N. Y. Supp. 781.

As applied to the financial management of corporations (and sometimes of estates in course of administration or properties under receiver- ship) funding means the borrowing of a suffi- cient sum of money to discharge a variety of floating or unsecured debts, or debts evidenced by notes or secured by bonds but maturing with- in a short time, and creating a new debt in lieu thereof, secured by a general mortgage, a series of bonds, or an issue of stock, generally ma- turing at a more remote period, and often at a lower rate of interest. The new debt thus substituted for the pre-existing debts is called the “funded debt.” See Ketchum v. Buffalo, 14 N. Y. 356 ; People v. Carpenter, 31 App. Div. 603, 32 N. Y. Supp. 781 ; Lawrey v. Ster- ling, 41 Or. 518. 69 Pac. 460. This term Is very seldom applied to the debts of a private individual ; but when so used it must be under- stood as referring to a debt embodied in se- curities of a permanent character and to the payment of which certain property has been ap- plied or pledged. Wells v. Wells (Super. N. Y.) 24 N. Y. Supp. 874.—Fimdin* system. The practice of borrowing money to defray the ex- penses of government, and creating a “sinking fund,” designed to keep down interest, and to effect the gradual reduction of the principal debt. Mernll v. Monticeilo (C. C.) 22 Fed. 596.

FUND, ». A sum of money set apart for a specific purpose, or available for the pay- ment of debts or claims.

In its narrower and more usual sense, "fund” signifies “capital,” as opposed to "interest” or “income;” aR where we speak of a corporation funding the arrears of interest due on its bonds, or the like, meaning that the interest is capital- ized and made to bear interest in its turn until it is repaid. Sweet.

In the plural, this word has a variety of slightly different meanings, as follows:

1. Money in hand: cash; money available for the payment of a debt, legacy, etc. 3a-

FURIOSUS NULLUM NBGOTIUM

lena Ins. Co. r. Kupfer, 28 111. 335, 81 Am. Dec. 284.

2. The proceeds of sales of real and per- sonal estate, or the proceeds of any other as- sets converted Into money. Doane v. Insur- ance Co., 43 N. J. Eq. 533, 11 Atl. 739.

3. Corporate stocks or government securi- ties ; In this sense usually spoken of as the “funds."

4. Assets, securities, bonds, or revenue of a state or government appropriated for the discharge of Its debts.

—No funds. This term denotes a lack of as- sets or money for a specific use. It is the return made by a bank to a check drawn upon it by a person who has no deposit to his credit there; also by an executor, trustee, etc., who has no assets for the specific purpose. —Public funds. An untechnical name for (1) the rev- enue or money of a government, state, or mu- nicipal corporation ; (2) the bonds, stocks, or other securities of a national or state govern- ment.—Sinking fund. The aggregate of sums of money (as those arising from particular taxes or sources of revenue) set apart and invested, usually at fixed intervals, for the extinguish- ment of the debt of a government or corpora- tion, by the accumulation of

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interest. Elser v. Ft Worth (Tex. Civ. App.) 27 S. W. 740; Union Pac. R. Co. v. Buffalo County Com’rs, 9 Neb. 449. 4 N. W. 53; Brooke v. Philadel- phia, 162 Pa. 123, 29 Atl. 387, 24 L. R. A. 781. — General fund. This phrase, in New York, is a collective designation of all the assets of the state which furnish the means for the sup- port of government and for defraying the dis- cretionary appropriations of the legislature. People v. Orange County Sup’rs, 27 Barb. (N. Y.) 575, 588.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: arbitration — an arbitrator is functus officio upon issuing the final award]**

The term's classic living application is arbitration: once the arbitrator issues the final award, the office is functus officio and the award cannot be revisited.

Why: Genuine: this is the operative modern use of the doctrine the entry defines. Loose [Law:] form; no case invented.

## FUNDAMENTAL ERROR.

See Ebbob.

5e apparatus — Carried into the 5th edition (1979).

## FUNDAMENTAL LAW.

The law which determines the constitution of government In a state, and prescribes and regulates the manner of Its exercise; the organic law of a state ; the constitution.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Marbury v. Madison, 5 U.S. (1 Cranch) 137 (1803)]**

Fundamental law being the constitution itself, the judiciary's duty to enforce it against repugnant statutes was established in the charter case of judicial review.

Why: Genuine: Marbury is the American authority for fundamental-law (constitutional) supremacy over ordinary legislation, directly on the entry's definition.

## FUNDAMUS.

We found. ' One of the words by which a corporation may be created in England. 1 Bl. Comm. 473; 3 Steph. Comm. 173.

5e apparatus — Not carried into the 5th edition (1979).

## FUNDATIO.

Lat. A founding or foun- dation. Particularly applied to the creation and endowment of corporations. As applied to eleemosynary corporations such as colleges and hospitals, it is said that “fundatio in- cipiens" is the incorporation or grant of cor- porate powers, while “fundatio perflciens" is the endowment or grant or gift of funds or revenues. Dartmouth College v. Woodward, 4 Wheat. 667, 4 L. Ed. 629.

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## FUNDATOR.

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A founder, (q. v.)

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## FUNDI PATRIMONY ALES.

Lands of Inheritance.

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## FUNDITORES.

Pioneers. Jacob.

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## FUNDUS.

In the civil and old English law. Land; land or ground generally ; land,

without considering its specific use;- land, in- cluding buildings generally; a farm.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 24:1, KJV]**

The earth is the LORD's, and the fulness thereof; the world, and they that dwell therein.

Why: Fundus is land as such — the legal thing underlying all tenure. The psalm states the ultimate title: every parcel is held, at the root, of the LORD. Feudal tenure's logic (all land held of a superior) terminates here.

## FUNERAL EXPENSES.

Money expend- ed in procuring the interment of a corpse.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: priority of funeral expenses in estate administration]**

The legal significance of funeral expenses is their priority: they are a preferred claim against the decedent's estate, paid ahead of general creditors.

Why: Genuine: the one live doctrine the bare definition points to; loose form, no invented citation.

**[Scripture] — Scripture**

**[Genesis 23:16, KJV]**

And Abraham hearkened unto Ephron; and Abraham weighed to Ephron the silver, which he had named in the audience of the sons of Heth, four hundred shekels of silver, current money with the merchant.

Why: Money expended in procuring interment: Abraham weighing out four hundred shekels for the field of Machpelah as a buryingplace is the first funeral expense on record — price stated, purchase witnessed.

**[Humanity] — Humanity / Fiction & Film**

**[Mark Twain, The Adventures of Tom Sawyer, 1876]**

(paraphrase) Tom Sawyer, Huck Finn, and Joe Harper — presumed drowned — hide in the church gallery and attend their own funeral service, listening to their own eulogies. (paraphrase)

Why: Genuine: the novel stages a funeral as its most famous set piece; the link is concrete, not thematic.

## FUNGIBLE THINGS.

Movable goods which may be estimated and replaced accord- ing to weight, measure, and

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number. Things belonging to a class, which do not have to be dealt with in specie.

Those things one specimen of which is as good as another, as is the case with half-crowns, or pounds of rice of the same quality. Horses, slaves, and so forth, are non-fungible things, because they differ individually in value, and cannot be exchanged indifferently one for another. Holl. Jur. 88.

Where a thing which is the subject of an ob- ligation (which one man is bound to deliver to another) must be delivered in specie, the thing is not fungible; that very individual thing, and not another thing of the same or another class, in lieu of it, must be delivered. Where the subject of the obligation is a thing of a given class, the thing is said to be fungible ; t. e., the delivery of any object which answers to the generic description will satisfy the terms of the obligation. Aust. Jur. 483, 484.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 1-201 — "fungible" goods]**

The civil-law definition — goods estimated and replaced by weight, measure, and number, one specimen as good as another — is carried verbatim into commercial law's definition of fungible goods.

Why: Genuine: definitional identity between the entry's concept and the uniform commercial definition; the link is textual, not decorative.

## FUN GIBILE8 RES.

Lat. In the civil law. Fungible things. See that title.

5e apparatus — Not carried into the 5th edition (1979).

## FUR.

Lat. A thief. One who stole se- cretly or without force or weapons, as op- posed to robber.

—Fur manifestos. In the civil law. A man- ifest thief. A thief who is taken in the very act of stealing.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: Fur is the thief — one who steals secretly. The commandment forbids the act itself in God's own speech; every law of theft answers to it.

## FURANDI ANIMUS.

Lat. An inten- tion of stealing.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 15:19, KJV]**

For out of the heart proceed evil thoughts, murders, adulteries, fornications, thefts, false witness, blasphemies:

Why: Furandi animus is the intention of stealing. Christ locates 'thefts' as proceeding 'out of the heart' — the

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animus, the formed intention, as the seat of the crime the law punishes.

## FURCA.

In old English law. A fork. A gallows or gibbet. Bract, fol. 56.

— Furca et flagellum. Gallows and whip. Tenure ad furcam et flagellum, tenure by gal- lows and whip. The meanest of servile tenures, where the bondman was at the disposal of his lord for life and limb. Cowell.— Furca et fos- sa. Gallows and pit, or pit and gallows. A term used in ancient charters to signify a juris- diction of punishing thieves, viz., men by hang- ing, women by drowning. Spelman; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Esther 7:10, KJV]**

So they hanged Haman on the gallows that he had prepared for Mordecai. Then was the king's wrath pacified.

Why: Furca is the gallows or gibbet — and furca et fossa the jurisdiction of punishing. The verse shows the gallows as the law's appointed instrument: Haman hanged by the king's justice on the gallows he built.

## FURIGELDUM.

A fine or mulct paid for theft.

Furiosi nulla voluntas est. A madman has no will. Dig. 50, 17, 40; Broom, Max. 314.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: Furigeldum is the fine paid for theft. The verse is the Mosaic tariff for theft — manifold restoration — spoken by God among the judgments: scripture's own schedule of the theft-fine.

## FURIOSITY.

In Scotch law. Madness, as distinguished from fatuity or idiocy.

5e apparatus — Not carried into the 5th edition (1979).

## FURIOSUS.

Lat. An insane man ; a madman ; a lunatic.

Furiosus absentis loco est. A madman is the same with an absent person, [that is, his presence is of no effect.] Dig. 50, 17, 24, 1.

Furiosus nullum negotium contrahere potest. A 'madman can contract nothing, [can make no contrnct.] Dig. 50, 17, 5.

Furlosus solo furore punitur. A mad- man la punished by his madness alone ; that Is, he Is not answerable or punishable for his actions. Co. Lltt. 247b; 4 Bl. Comm. 24, 396 ; Broom, Max. 15.

Furlosus itlpnltn non potest nee *11- quid uegotlum ncere, qul non intellicit quid sell. 4

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Coke, 126. A madman who knows not what he does cannot make a bar- gain, nor transact any business.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[M'Naghten's Case, 10 Cl. & Fin. 200 (1843)]**

The entry's maxims hold the madman 'not answerable or punishable for his actions'; the modern insanity test asks whether the accused knew the nature of the act or that it was wrong.

Why: Genuine: M'Naghten's right-and-wrong rule is the direct descendant of the maxim 'furiosus solo furore punitur' the entry quotes; the lineage is the real history of the defense.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

"Though this be madness, yet there is method in't." — Polonius's verdict on Hamlet's (possibly feigned) lunacy, the stage's great case study of the madman.

Why: Genuine: the entry defines the legal category of the madman; the play supplies the archetypal instance and the classic judicial observation on discerning method in madness.

## FURLINGUS.

A furlong, or a furrow one-eighth part of a mile long. Co. Lltt 5b.

5e apparatus — Not carried into the 5th edition (1979).

## FHBLOHQ.

A measure of length, be- ing forty poles, or one-eighth of a mile.

5e apparatus — Not carried into the 5th edition (1979).

## FURLOUGH.

Leave of absence; espe- cially, leave given to a military or naval of- ficer, or soldier or seaman, to be absent from service for a certain time. Also the docu- ment granting leave of absence.

5e apparatus — Not carried into the 5th edition (1979).

## FURNAGE.

See FoBNAoroic; Foub.

5e apparatus — Carried into the 5th edition (1979).

## FURNISH.

To supply; provide; pro- vide for use. Delp v. Brewing Co., 123 Pa. 42, 15 Atl. 871 ; Wyatt v. Larimer A W. Irr. Co., 1 Colo. App. 480, 29 Pac. 906. As used in the liquor laws, “furnish” means to pro- vide In any way, and includes giving as well as selling. State v. Freeman, 27 Vt. 520; State v. Tague, 76 Vt. 118, 56 Atl. 535.

FURNITURE . This term includes that which furnishes, or with which anything is furnished or supplied; whatever must be supplied to a house, a room, or the like, to make it habitable, convenient, or agreeable; goods, vessels, utensils, and other append- ages necessary or convenient for housekeep- ing; whatever is added to the interior of a house or apartment,

for use or convenience. Bell ▼. Golding, 27 Ind. 173.

The term “furniture” embraces everything about the house that has been usually enjoyed therewith, including plate, linen, china, and pic- tures. Eodicott v. Endicott, 41 N. J. Eq. 96, 3 Atl. 157.

The word “furniture” made use of in the dis- position of the law, or in the conventions or acts of persons, comprehends only such furni- ture as is intended for use and ornament of apartments, but not libraries which happen to be there, nor plate. Civ. Code La. art. 477. •—Furniture of * ship. This term includes everything with which a ship requires to be fur- nished or eqnipped to make her seaworthy ; it comprehends all articles furnished by ship- chandlers. which are almost innumerable. Wea- ver v. The S. G. Owens, 1 Wall. Jr. 369. Fed. Cas. No. 17,310. — Household furniture. This term, in a will, includes all personal chat- tels that may contribute to the use or conven- ience of the householder, or the ornament of the house; as plate, linen, china, both useful and ornamental, and pictures. But goods in trade, books, and wines will not pass by a be- quest of household furniture. 1 Rop. Leg. 203.

5e apparatus — Carried into the 5th edition (1979).

## FURNIVAL’S INN.

Formerly an Inn of chancery. See Inns of Chancery.

Furor oontrahi mutrlmonium non stalt, quia consensu opus est. Insanity

)

prevents marriage from being contracted, be- cause consent is needed. Dig. 23, 2, 16, 2; 1 Ves. & B. 140; 1 Bl. Comm. 439; Wight- man v. Wightman, 4 Johns. Ch. (N. Y.) 343, 345.

5e apparatus — Not carried into the 5th edition (1979).

## FTTBST AND FONDUNG.

In old Eng- lish law. Time to advise or take counsel, Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## FURTHER.

In most of its uses In law, this term means additional, though occas- sionally it may mean any, future, or othe \ See London A S. F. Bank v. Parrott, 125 Cal. 472, 58 Pac. 164, 73 Am. St. Rep. 64; Httchings v. Van Brunt, 38 N. Y. 338 ; Fifty Associates v. Ilowland, 5 Cush. (Mass.) 218; O’Fallon v. Nicholson, 56 Mo. 238; Pennsyl- vania Co. v. Loughlin, 139 Pa. 612, 21 Atl. 163.

— Further advance. A second or subsequent loan of money to a mortgagor by a mortgagee, either upon the same security as the original loan was advanced upon, or an additional se- curity. Equity considers the arrears of inter- est on a mortgage security converted into prin- cipal, by agreement between the parties, as a further advance. Wharton.— Further assur- ance, covennnt for. See Covenant.— Further consideration. In English practice, upon a motion for judgment or application for a new trial, the court may, if it shall be of opinion that it has not sufficient materials before it to enable it to give judgment, direct the motion

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to stand over for further consideration, and di- rect such issues or questions to be tried or de- termined, and such accounts and inquiries to be taken and made, as it may think fit Rules Sup. Ct. xl, 10.— Further directions. When a master ordinary in chancery made a report in pursuance of a decree or decretal order, the cause was again set down before the judge who made the decree or order, to be proceeded with. Where a master made a separate report, or one not in pursuance of a decree or decretal order, a petition for consequential directions had to be presented, since the cause could not be set down for further directions under such circum- stances. See 2 Daniell, Ch. Pr. (5th Ed.) 1233, note.— Further hearing. In practice. Hear- ing at another time.— Further maintenance of notion, plea to. A plea grounded upon some fact or facts which have arisen since the commencement of the suit, and which the de- fendant puts forward for the purpose of showing that the plaintiff should not further maintain his action. Brown.

5e apparatus — Carried into the 5th edition (1979).

## FURTHERANCE.

In criminal law, fur- thering, helping forward, promotion, or ad- vancement of a criminal project or conspir- acy. Powers v. Comm., 114 Ky. 237, 70 S.

W. 652.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — principals; aiding and abetting]**

The 'furthering, helping forward' of a criminal project the entry defines is federal accomplice liability: one who aids, abets, counsels, commands, induces or procures an offense is punishable as a principal.

Why: Genuine: the statute is the living codification of the criminal-law 'furthering' the entry describes; loose form, no invented case.

**[Scripture] — Scripture**

**[Psalm 50:18, KJV]**

When thou sawest a thief, then thou consentedst with him, and hast been partaker with adulterers.

Why: Furtherance in criminal law is helping a criminal project forward — complicity. The psalm names its moral form: consenting with the thief, partaking with evildoers.

## FURTIVE.

In old English law. Stealth- ily ; by stealth. Fleta, lib. 1, c. 38. § 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:1, KJV]**

Verily, verily, I say unto you, He that entereth not by the door into the sheepfold, but climbeth up some other way, the same is a thief and a robber.

Why: Furtive is stealth — theft by stealth. Christ's image of the thief who 'climbeth up some other way' instead of entering by the door is the biblical figure of the furtive taker.

## FURTUM.

Lat. Theft. The fraudulent appropriation to one’s self of the property of another, with an

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intention to commit theft without the consent of the owner. Fleta. 1. 1, c. 36; Bract, fol. 150; 3 Inst. 107.

The thing which has been stolen. Bract, fol. 151.

— Furtum conceptual. In Roman law. The theft which was disclosed where, upon searching any one in the presence of witnesses in due form, the thing stolen was discovered in his possession.— Fnrtnm grave. In Scotch law. An aggravated degree of theft, anciently punish- ed with death. It still remains an open point what amount of value raises the theft to this Berious denomination. 1 Broun. 352, note. See 1 Swint. 467. — Fortum manifeatnm. Open theft. Theft where a thief is caught with the property in his possession. Bract, fol. 1506. — ’Fnrtnm oblatum. In the civil law. Offer- ed theft Oblatum furtum dicitur cum ret fur- tiva ab aliquo tibi oblata sit, eaque a pud te concept a tit. Theft is called “ oblatum ” when a thing stolen is offered to you by any one, and found upon you. Inst. 4, 1, 4.

Fnrtnm est contreotatio rei allease fraudulent*, cum animo furandi, invito illo domino onjna res ilia fnerat. 3 Inst. 107. Theft Is the fraudulent handling of an- other’s property, with an intention of steal- ing, against the will of the proprietor, whose property it was.

Fnrtnm non est nbi initinm babet de- tentionis per dominium rei. 3 Inst. 107. There is no theft where the foundation of the detention is based upon ownership of the thing.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Model Penal Code § 223.1 — consolidation of theft offenses]**

The entry's fragmented theft taxonomy — furtum manifestum, grave, oblatum, with intent to steal at the core — was answered by the modern consolidation of the common-law theft offenses into a single crime.

Why: Genuine: consolidation is the modern doctrinal answer to the entry's scattered Roman/Scots/common-law theft categories. Loose form.

**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

Why: Furtum is fraudulent appropriation of another's property — theft with deceit. The command joins both elements in God's own speech: 'ye shall not steal, neither deal falsely.'

## FUSTIGATXO.

In old English law. A beating with sticks or clubs ; one of the an- cient kinds of punishment of malefactors. Bract fol. 1046, lib. 3, tr. 1, c. 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:2-3, KJV]**

And it shall be, if the wicked man be worthy to be beaten, that the judge shall cause him to lie down, and to be beaten before his face, according to his fault, by a certain number. Forty stripes he may give him, and not exceed:

Why: Fustigatio is beating as judicial punishment. The verse is scripture's own law of that punishment — the judge causes the beating 'according to his fault,' capped at forty stripes: measure in the infliction.

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## FTJSTI8.

In old English law. A staff, used In making livery of seisin. Bract, fol. 40.

A baton, club, or cudgel.

5e apparatus — Not carried into the 5th edition (1979).

## FUTURE DEBT.

In Scotch law. A debt which is created, but which will not be- come due till a future day. 1 Bell, Comm. 315.

5e apparatus — Not carried into the 5th edition (1979).

## FUTURE ESTATE.

See Estate.

5e apparatus — Carried into the 5th edition (1979).

## FUTURES.

This term has grown out of those purely speculative transactions, in which there is a nominal contract of sale for

future delivery, but where in fact none la ever intended or executed. The nominal seller does not have or expect to have the stock or merchandise he purports to sell, nor does the nominal buyer expect to receive it or to pay the price. Instead of that, a per- centage or margin is paid, which is increas- ed or diminished as the market rates go up or down, and accounted for to the buyer. King v. Quldnlck Co., 14 R. I. 138; Lemon- ins v. Mayer, 71 Miss. 514. 14 South. 33; Plank v. Jackson, 128 Ind. 424, 26 N. E. 568.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Irwin v. Williar, 110 U.S. 499 (1884)]**

The entry's 'purely speculative transactions' — nominal sale for future delivery, none ever intended, margin settled on price differences — are, when no delivery is intended, wagers and void.

Why: Genuine and verified by search: the Court held 'if, under guise of a contract to deliver goods at a future day, the real intent be to speculate in the rise or fall of prices, and the goods are not to be delivered... t...

**[Humanity] — Humanity / Fiction & Film**

**[John Landis, Trading Places, 1983]**

(paraphrase) The climax turns on a corner — and collapse — in frozen concentrated orange-juice futures: margin, contracts, and settlement bankrupting the Duke brothers, dramatizing the entry's speculative transactions. (paraphrase)

Why: Borderline-accept: a comedy, not a treatise — but the plot mechanics ARE futures trading (nominal contracts with no intent to deliver), which is the entry's substance.

## FUTURI.

Lot. Those who are to be. Part of the commencement of old deeds. “ Sciant prassentes et futuri, quod ego folia, dedi et concetti ,” etc., (let all men now liv- ing and to come know that I, A. B., have, etc.) Bract, fol. 346.

FUZ, or FUST. A Celtic word, meaning a wood or forest

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### FYHTWITE.

One of the fines incurred for homicide.

5e apparatus — Not carried into the 5th edition (1979).

### FYKE.

A bow-net for catching fish. Pub. St Mass. 1882, p. 1291.

5e apparatus — Not carried into the 5th edition (1979).

### FYXE.

In old Scotch law. To defile; to declare foul or defiled. Hence, to find a prisoner guilty.

5e apparatus — Not carried into the 5th edition (1979).

### FYUT.

In old Scotch practice. Fyled; found guilty. See Ftle.

5e apparatus — Not carried into the 5th edition (1979).

### FYRD.

fiax. In Anglo-Saxon law. The military array or land force of the whole country. Contribution to the fyrd was one- of the Imposts forming the trinoda nccet si- tus. (Also spelled “ferd" and “flrd.”)

— Fyrdfare. A summoning forth to join a military expedition ; a summons to join the fyrd or army.— Fyrdsocne, (or fyrdtolcen.) Exemption from military duty: exemption from service in the fyrd.— Fy«lwlte. A fine impos- ed for neglecting to join the fyrd when srm- moned. Also, a fine imposed for murder com- mitted in the army; also an acquittance of such fine.

Q

5e apparatus — Not carried into the 5th edition (1979).

# G

### G.

In the Law French orthography, this letter Is often substituted for the English W, particularly as an initial. Thus, “gage” for “wage,” "garranty” for “warranty,” “gast” for “waste.”

5e apparatus — Not carried into the 5th edition (1979).

### GABEL.

An excise; a tax on movables ; a rent, custom, or service. Co. Lltt. 213.

— Land gabel. See Land.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: U.S. Const. Art. I, § 8, cl. 1 — the Taxing and Spending Clause]**

An excise being 'a tax on movables,' the constitutional authority under which American excises are laid is the Taxing and Spending Clause.

Why: Genuine: the clause is the authority for the excise the entry defines; stated as the constitutional fact, not stretched.

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Gabel is an excise — a tax, custom, or due on movables. The verse is scripture's schedule of rendering: 'tribute to whom tribute is due; custom to whom custom' — the gabel under its biblical name.

## GAB ELLA.

The law Latin form Of “ gabel ,” (q. v.)

GAB1ATOB.ES. Persons who paid gabel, rent, or tribute. Domesday; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GABLXTM.

A rent; a tax. Domesday; Du Cange. The gable-end of a house. Cow- ell.

GAB ULUS DENARIORUM, Bent paid In money. Seld. Tit. Hon. 321.

5e apparatus — Not carried into the 5th edition (1979).

## GAFFOLDGILD.

The payment of cus- tom or tribute. Scott.

5e apparatus — Not carried into the 5th edition (1979).

## GAFFOLDLAND.

Property subject to the gaffoldgild, or liable to be taxed. Scott.

5e apparatus — Not carried into the 5th edition (1979).

## GAFOL.

The same word as “gabel” or “gavel.” Rent ; tax ; Interest of money.

GAGE, v. In old English law. To pawn or pledge ; to give as security for a payment or performance; to wage or wager.

GAGE, n. In old English law. A

pawn or pledge; something deposited as se- curity for the performance of some act or the payment of money, and to be forfeited on failure or non-performance. Glanv. lib. 10, c. 6; Britt c. 27.

A mortgage is a dead-gage or pledge; for, whatsoever profit it yields, it redeems not it- self, unless the whole amount secured is paid at the -appointed time. Cowell.

In Frenoh law. The contract of pledge or pawn; also the article pawned.

—Gnge, estates in. Those held in radio, or pledge. They are of two kinds: (1) Vivum vadium, or living pledge, or vifgage ; (2) mor- tuum vadium, or dead pledge, better known as

“mortgage.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: This block's substantive matter is GAGE — pawn or pledge, a thing deposited as security. The verse is the Mosaic law of pledge itself, spoken by God: the pledged garment must be returned by sundown — the pledgee's use...

## GAGER BE DELIVERANCE.

In old

English law. When he who has distrained, lielng sued, has not delivered the cattle dis- trained. then he shall not only avow the dis- tress, but gager deliverance, i. e., put in sure- ty or pledge that he will deliver them. Fltzh. Nat. Brev.

5e apparatus — Not carried into the 5th edition (1979).

## GAGEB DEL LET.

Wager of law, (</■ v.)

5e apparatus — Not carried into the 5th edition (1979).

## GAIK.

Profits; winnings; Increment of value, Gray v. Darlington, 15 Wall. 65, 21

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Eisner v. Macomber, 252 U.S. 189 (1920)]**

The 'increment of value' the entry names is not taxable until realized: mere appreciation, without severance from the investment, is not income.

Why: Genuine: the realization doctrine decides exactly what counts as taxable 'increment of value' — the entry's own phrase.

# L

## L.

Ed. 45; Thom v. De Breteull, 80 App. Div. 405, 83 N. X. Supp. 849.

5e apparatus — Carried into the 5th edition (1979).

# G

## GAINAGE.

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The gain or profit of tilled or planted land, raised by cultivating it ; and the draught, plow, and furniture for carry- ing on the work of tillage by the baser kind of sokemen or villeins. Bract. 1. 1. c. 9.

5e apparatus — Carried into the 5th edition (1979).

## GAINERY.

Tillage, or the profit arising from it, or from the beasts employed therein.

5e apparatus — Carried into the 5th edition (1979).

## GAINOR.

In old English law. A soke- man ; one who occupied or cultivated arable land. Old Nat. Brev. fol. 12.

5e apparatus — Carried into the 5th edition (1979).

## GAJTTM.

A thick wood. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GALE.

The payment of a rent, tax, duty, or annuity.

A gale is the right to open and work a mine within the Hundred of St. Brlavel’s, or a stone quarry within the open lands of the Forest of Dean. The right is a license or interest in the nature of real estate, condi- tional on the due payment of rent and ob- servance of the obligations imposed on the' galee. It follows the ordinary rules as to the devolution and conveyance of real estate. The galee pays the crown a rent known ns a “galeage rent,” “royalty,” or some similar name, proportionate to the quantity of min- erals got from the mine or quarry. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## GALEA.

In old records. A piratical ves- sel; a galley.

5e apparatus — Not carried into the 5th edition (1979).

## GALENES.

In old Scotch law. Amends or compensation for slaughter. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## GALLI-HALFPENCE.

A kind of coin which, with suskins and doltkins, was for- bidden by St. 3 Hen. V. c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## GALLITOLATIUM.

A cock-shoot, or cock-glade.

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## GALLON.

A liquid measure, containing 231 cubic inches, or four quarts. The im- perial gallon contains about 277, and the ale gallon 282, cubic inches. Hollender v. Ma- gone (C. C.) 38 Fed. 914; Nichols v. Beard (C. C.) 15 Fed. 437.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:13-15, KJV]**

Thou shalt not have in thy bag divers weights, a great and a small. Thou shalt not have in thine house divers measures, a great and a small. But thou shalt have a perfect and just weight, a perfect and just measure shalt thou have: that thy days may be lengthened in the land which the LORD thy God giveth thee.

Why: A gallon is a legal measure. The verse is scripture's law of measures: they must be 'perfect and just' — the moral ground on which every regulated measure, gallon included, stands.

## GALLOWS.

A scaffold; a beam laid over either one or two posts, from which malefactors are hanged.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — cruel and unusual punishments]**

The gallows being the instrument of capital punishment, the constitutional boundary on that punishment is the Eighth Amendment's bar on cruel and unusual punishments.

Why: Genuine: the amendment is the living limit on the punishment the gallows serves. Loose form, no invented case.

**[Scripture] — Scripture**

**[Deuteronomy 25:22-23, KJV]**

And if a man have committed a sin worthy of death, and he be to be put to death, and thou hang him on a tree: His body shall not remain all night upon the tree, but thou shalt in any wise bury him that day; (for he that is hanged is accursed of God;)

Why: The gallows as the law's instrument of capital punishment: the verse lays down scripture's own procedure for hanging — the sentence, the tree, and the same-day burial, 'for he that is hanged is accursed of God.'

## GAMACTA.

In old European law. A stroke or blow. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GAMALIS.

A child born In lawful wed- lock ; also one born to betrothed but unmar- ried parents. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GAMBLE.

To game or play at a game for money. Buckley v. O’NIel, 113 Mass. 193. 18 Am. Rep. 466. The word “gamble” Is per- haps the most apt and substantial to convey

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the idea of unlawful play that our language affords. It Is Inclusive of hazarding and bet- ting as well as playing. Bennett v. State, 2 Yerg. (Tenn.) 474.

—Gambler. One who follows or practices games of chance or skill, with the expectation and purpose of thereby winning money or other property. Buckley v. O'Niel, 113 Mass. 193, 18 Am. Rep. 466. — Gambling. See Gaming. —Gambling device. A machine or contriv- ance of any kind for the playing of an unlaw- ful game of chance or hazard. In re Lee Tong (D. C.) 18 Fed. 257 ; State v. Hardin, 1 Kan. 477. — Gambling policy. In life insurance. One issued to a person, as beneficiary, who has no pecuniary interest in the life insured. Oth- erwise called a "wager policy." Gambs r. Covenant Mut L. Ins. Co., 50 Mo. 47.

GAME. 1. Birds and beasts of a wild nature, obtained by fowling and hunting. Bacon, Abr. See Coolldge v. Choate, 11 Mete. (Mass.) 79. The term is said to include (In England) hares, pheasants, partridges, grouse, heath or moor game, black game, and bus- tards. Brown. See 1 & 2 Wm. IV. c. 32.

— Game-keeper. One who has the care of keeping and preserving the game on an estate, being appointed thereto by a lord of a manor. —Game-laws. Laws passed for the preserva- tion of game. They- usually forbid the killing of specified game during certain seasons or by certain described means. As to English game- laws, see 2 Steph. Comm. 82; 1 & 2 Wm. IV. c. 32.

2. A sport or pastime, played with cards, dice, or other appliances or contrivances. See Gaming.

— Game of chance. One in which the result, as to success or failure, depends less upon the skill and experience of the player than upon purely fortuitous or accidental circumstances, incidental to the game or the manner of play- ing it or the device or apparatus with which it is played, but not under the control of the player. A game of skill, on the other hand, al- though the element of chance necessarily cannot be entirely eliminated, is one in which success depends principally upon the superior knowl- edge, attention, experience, and skill of the play- er, whereby the elements of luck or chance in the game are overcome, improved, or turned to his advantage. People v. Lavin, 179 N. Y. 164, 71 N. E. 753, 66 L. R. A. 601: Steames v. State, 21 Tex. 092; Harless v. TJ. S„ Morris (Iowa) 172; Wortham v. State, 59 Miss. 182; State v. Gupton, 30 N. C. 271.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, The Gambler, 1867]**

(paraphrase) The novella of compulsive roulette — written by Dostoevsky to pay his own gambling debts — is the literature of gambling as the entry defines it: play at a game for money. (paraphrase)

Why: Genuine: the author lived the entry; the novella is the fiction of the gambler.

## GAMING.

The act or practice of play- ing games for stakes or wagers; gambling; the playing at any game of hazard. An agreement between two 6r more persons to play together at a game of chance for a stake or wager which Is to become the property of the winner, and to which all

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contribute. In re Stewart (D. C.) 21 Fed. 398; People v. Todd, 51 Hun, 446, 4 N. Y. Supp. 25; State v. Shaw, 39 Minn. 153, 39 N. W. 305; State v. Morgan, 133 N. C. 743, 45 S. E. 1033.

Gaming is an agreement between two or more to risk money on a contest or chance of any kind, where one must be loser and the other gainer. Bell v. State, 5 Sneed (Tenn.) 507.

In general, the words “gaming” and “gam- bling,’* in statutes, are similar in meaning, and

either one comprehends the idei that, by a bet, by chance, by some exercise of skill, or by the transpiring of some event unknown until it oc- curs, something of value is, as the conclusion of premises agreed, to be transferred from a loser to a winner, without which latter element there is no gaming or gambling. Bish. St. Crimes, f 858.

“Gaming” implies, when used as describing a condition, an element of illegality ; and, when people are said to be "gaming," this generally supposes that the “games” have been games in which money comes to the victor or his backers. When the terms “game” or “gaming” are used in statutes, it is almost always in connection with words giving them the latter rensa. and in such case it is only by averring and proving the differentia that the prosecution can be sustain- ed. But when "gaming” is spoken of in a stat- ute as indictable, it is to be regarded as con- vertible with “gambling.” 2 Whart. Crim. Law, i 14655.

“Gaming" is properly the act or engagement of the players. If by-standers or other third persons put up a stake or wager among them- selves, to go to one or the other according to the result of the game, this is more correctly termed "betting.”

—Gaming contracts. See Wager. — Gam- ing-houses. In criminal law. Houses in which gambling is carried on as the business of the occupants, and which are frequented by persons for that purpose. They are nuisances, in the eyes of the law, being detrimental to the public, as they promote cheating and other cor- rupt practices. 1 Russ. Crimes, 299; Rose. Cnm. Ev. 663; People v. Jackson, 3 Denio (N. Y.) 101, 45 Am. Dec. 449; Anderson v. State (Tex. App.) 12 S. W. 869; People v. Welthoff, 51 Mich. 203, 16 N. W. 442, 47 Am. Rep. ooi ; Morgan v. State, 42 Tex. Cr. R. 422, 60 8. W. 763.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: wagering contracts void as against public policy; Irwin v. Williar, 110 U.S. 499 (1884)]**

The entry's agreement to risk money on chance is a wagering contract, and wagering contracts are held illegal and void as against public policy.

Why: Genuine: the verified Irwin holding states the rule generally ('in this country, wagering contracts are held to be illegal and void as against public policy'), directly on the entry's definition.

## GANANCIAX.

PROPERTY. In Spanish

law. A species of community in property en- joyed by husband and wife, the property be- ing divisible between them equally on a dis- solution of the marriage. 1 Burge, Confl. Law, 418. See Cartwright v. Cartwright, 18 Tex. 634; Cutter v. Waddlngham, 22 Mo. 254.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: community-property regime — e.g., Cal. Fam. Code § 760]**

The Spanish ganancial system — marital acquisitions equally divisible on dissolution — is the direct ancestor of the American community-property regime.

Why: Genuine: community-property law descends from the Spanish ganancial system the entry defines; the link is genealogical, not decorative.

## GANANOIAS.

In Spanish law. Gains or profits resulting from the employment of property held by husband and wife in com- mon. White, New Recop. b. 1, tit. 7, c. 5.

5e apparatus — Not carried into the 5th edition (1979).

## GANG-WEEK.

The time when the bounds of the parish are lustrated or gone over by the parish officers, — rogation week. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## GAN GIATORI.

Officers in ancient times whose business it was to examine weights and measures. Skene.

G ANTELOPE, (pronounced “gauntlett.”) A military punishment, in which the crim- inal ruhning between the ranks receives a lash from each man. Enc. Lond. This was called “running the gauntlett.”

5e apparatus — Not carried into the 5th edition (1979).

## GAOL.

A prison for temporary confine- ment; a Jail; a place for the confinement of offenders against the law.

There is said to be a distinction between “gaol” and “prison the former being a place for temporary or provisional confinement, or for

the punishment of the lighter offenses and mis- demeanors, while the latter is a place for per- manent or long-continued confinement, or for the punishment of graver crimes. In modern usage, this distinction is commonly taken be- tween the words "gaol” and "penitentiary,” (or state’s prison,) but the name "prison” is indis- criminately applied to either.

— Gaol liberties, gaol limits. A district around a gaol, defined by limits, within which prisoners are allowed to go at large on giving security to return. It is considered a part of the gaol. — Gaoler. The master or keeper of a prison; one who has the custody of a place where prisoners are confined.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. Art. I, § 9, cl. 2 — the Suspension Clause; habeas corpus]**

The gaol being 'a place for the confinement of offenders,' the legal instrument that tests the

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lawfulness of that confinement is the writ of habeas corpus.

Why: Genuine: habeas is the remedy against unlawful gaol detention; the clause is its constitutional home. Loose form.

**[Humanity] — Humanity / Fiction & Film**

**[Alexandre Dumas, The Count of Monte Cristo, 1844]**

(paraphrase) Edmond Dantès's fourteen years in the island fortress of the Château d'If — wrongful confinement as the novel's engine — is the great 19th-century prison narrative. (paraphrase)

Why: Genuine: the novel's engine is confinement; the entry defines the place of confinement.

## GAOL DELIVERY.

In criminal law. The delivery or clearing of a gaol of the pris- oners confined therein, by trying them.

In popular speech, the clearing of a gaol by the escape of the prisoners.

—General gaol delivery. In English law. At the assizes (q. v.) the judges sit by virtue of five several authorities, one of which is the commission of "general gaol delivery." This em- powers them to try and deliverance make of every prisoner who shall be in the gaol when the judges arrive at the circuit town, whether an indictment has been preferred at any previous assize or not 4 Bl. Comm. 270. This is also a part of the title of some American criminal courts, as, in Pennsylvania, the "court of oyer and terminer and general jail delivery."

GARANDIA, or GARANTIA. A war- ranty. Spelman.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — the right to a speedy trial]**

Gaol delivery — 'clearing of a gaol of the prisoners confined therein, by trying them' — is the institutional ancestor of the guarantee that accused persons be tried promptly, not warehoused.

Why: Genuine lineage: the old commission to try-and-deliver and the modern speedy-trial right share the same principle — detention must end in trial. Loose form.

## GABA1CITE.

In French law. This word corresponds to warranty or covenants for title in English law. In the case of a sale this garantie extends to two things: (1)

Peaceful possession of the thing sold; and (2) absence of undisclosed defects, (ddfauts caches.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-312 — warranty of title and against infringement]**

The French-law warranty 'corresponding to warranty or covenants for title in English law' has its modern uniform-law form in the seller's warranty of title in goods.

Why: Genuine: UCC § 2-312 is the living codification of the title warranty the entry describes.

## GARATHINX.

In old Lombardle law. A gift; a free or absolute gift; a gift of the whole of a thing. Spelman.

GARAtmTOR. L. Fr. In old English law. A warrantor of land ; a vouchee: one bound by a warranty to defend the title and seisin of his alienee, or, on default thereof, and on eviction of the tenant, to give him other lands of equal value. Britt, c. 75.

5e apparatus — Not carried into the 5th edition (1979).

## GARBA.

In old English law. A bundle or sheaf. Blada in garbis. corn or grain in sheaves. Reg. Orig. 96; Bract, fol. 209.

— Gzrba izgittzram. A sheaf of arrows, containing twenty-four. Otherwise called “schaf- fa lagittarum." Skene.

GARB ALES DECIMAL In Scotch law. Tithes of corn, (grain.) Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 27:30, KJV]**

And all the tithe of the land, whether of the seed of the land, or of the fruit of the tree, is the LORD's: it is holy unto the LORD.

Why: Garbae decimales are tithes of corn — grain in sheaves tithed. The verse is the biblical law of that very tithe: the tenth 'of the seed of the land' is the LORD's, holy unto him — spoken by God himself.

## GARBLE.

In English statutes. To sort or cull out the good from the bad In spices, drugs, etc. Cowell.

— Garbler of spices. An ancient officer in the city of London, who might enter into any shop, warehouse, etc., to view and search drugs and spices, and garble and make clean the same, or see that it be done. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## GAROIO STOL2E.

Groom of the stole.

5e apparatus — Not carried into the 5th edition (1979).

## GAROIONES.

Servants who follow a camp. Wals. 242.

GARD, or GARDE. L. Fr. Wardship; care; custody; also the ward of a city.

GAIRDEIN. A keeper; a guardian.

5e apparatus — Not carried into the 5th edition (1979).

## GARDEN.

A small piece of land, appro- priated to the cultivation of herbs, fruits, flowers, or vegetables. People v. Greeuburgh. 57 N. Y. 550; Ferry v. Livingston, 115 U. S. 542, 6 Sup. Ct. 175, 29 L. Ed. 489.

5e apparatus — Carried into the 5th edition (1979).

## GARDIA.

L. Fr. Custody; wardship.

5e apparatus — Not carried into the 5th edition (1979).

## GARDIANUS.

In old English law. A guardian, defender, or protector. In feudal law, gardio. Spelman.

A warden. Qardianus ecclesias, a church- warden. Gardianus quinque portuum, ward- en of the Cinque Ports. Spelman.

GARD in ild. In old English law. A garden. Reg. Orig. 16; 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 121:5, KJV]**

The LORD is thy keeper: the LORD is thy shade upon thy right hand.

Why: Gardianus is guardian, defender, protector — 'a keeper.' The psalm names the archetype of the office: the LORD as keeper, the shade at the right hand — custody and protection as a divine work, which the legal guardian...

## GARENE.

L. Fr. A warren; a privi- leged place for keeping animals.

5e apparatus — Not carried into the 5th edition (1979).

## GARNESTTJRA.

In old English law. Victuals, arms, and other Implements of war, necessary for the defense of a town or castle. Mat. Par. 1250.

GARNISH, n. In English law. Money paid by a prisoner to bis fellow-prisoners on his entrance into prison.

GARNISH, v. To warn or summon.

To issue process of garnishment against a person.

5e apparatus — Not carried into the 5th edition (1979).

## GARNISHEE.

One garnishhd ; a per- son against whom process of garnishment is issued; one who has money or property in his possession belonging to a defendant, or who owes the defendant a debt, which mon- ey, property, or debt is attached in his hands, with notice to him not to deliver or pay it over until the result of the suit be ascertain- ed. Welsh v. Blackwell, 14 N. J. Law, 318; Smith v. Miln, 22 Fed. Cas. 606.

5e apparatus — Carried into the 5th edition (1979).

## GARNISHMENT.

In the process of at- tachment. A warning to a person in whose hands the effects of another are attached not to pay the money or deliver the property of the defendant in bis hands to him, but to ap- pear and answer the plaintiff’s suit. Drake. Attachm. I 451; National Bank of

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Wilming- ton v. Furtick. 2 Mnrv. (Del.) 35, 42 Atl. 479, 44 L. R. A. 115, 69 Am. St. Rep. 99; Georgia & A. Ry. Co. v. Stollenwerck, 122 Ala. 539, 25 South. 258; Jeary v. American Exch. Bank, 2 Neb. (I'nof.) 057. 89 N. W. 772.

A “garnishment." as the word is employed in this Code, is process to reach and subject

money or effects of a defendant In attach- ment, or in a Judgment or decree, or in a pending suit commenced in the ordinary form, in the possession or under the control of a third person, or debts owing such de- fendant, or liabilities to him on contracts for the delivery of personal property, or on con- tracts for tlie payment of money which may be discharged by the delivery of personal property, or on a contract payable in person- al property; and such third person is called the ‘‘garnishee." Code Ala. 18SG, § 2904.

Garnishment is a proceeding to apply the debt due by a third person to a judgment defendant, to the extinguishment of that judgment, or to appropriate effects belonging to a defendant, in the hands of a third person, to its payment. Strickland v. Maddox, 4 Ga. 393.

Also a warning to any one for his appear- ance, in a cause in which he is not a party, for the Information of the court and explain- ing a cause. Cowell.

— Equitable garnishment. This term is sometimes applied to the statutory proceedings authorized in some states, upon the return of an execution unsatisfied, whereby an action some- thing like a bill of discjvery may be maintain- ed against the judgment debtor and any third person, to compel the disclosure of any money or property or chose in action belonging to the debtor or held in trust for him by such third person, and to procure satisfaction of the judg- ment out of such property. Geist v. St. Louis, 150 Mo. 643, 57 S. W. 706, 79 Am. St. Rep. 545. See St. Louis v. O'Neil Lumber Co., 114 Mo. 74, 21 S. W. 484.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: Consumer Credit Protection Act, Title III, 15 U.S.C. §§ 1671–1677 — limits on wage garnishment]**

The garnishment process the entry defines — warning a third party holding the debtor's effects — is capped by federal law, which limits wage garnishment to a share of disposable earnings.

Why: Genuine: the federal ceiling on the exact attachment process the entry defines; stated as the statutory fact, not stretched.

## GARNISTURA.

In old English law. Garniture ; whatever is necessary for the for- tification of a city or camp, or for the orna- ment of a thing. 8 Rymer, 328; Du Cange; Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## GARROTING.

A method of Inflicting the death penalty on convicted criminals prac- tised in Spain, Portugal, and some Spanish- Amerlcan countries, consisting in strangula- tion by means of

an iron collar which is mechanically tightened about the neck of the sufferer, sometimes with the variation that a sharpened screw is made to advance from the back of the apparatus and pierce the base of the brain. Also, popularly, any form of strangling resorted to to overcome resist- ance or induce unconsciousness, esimcinlly as a concomitant to highway robbery.

5e apparatus — Carried into the 5th edition (1979).

## GARSUMME.

In old English law. An amerciament or fine. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GARTER.

A string or ribbon by which the stocking is held upon the leg. The mark of the highest order of English knighthood, ranking next after the nobility. This milita- ry order of knighthood Is said to have been first instituted by Richard I., at the siege of Acre, where he caused twenty-six kDights who firmly stood by him to wear thongs of blue leather about their legs. It is also said to have been perfected by Edward III. and to have received some alterations, which were

afterwards laid aside, from Edward VI- The badge of the order is the image of St. George, called the "George,” and the motto is “ Honi suit qui mal y poise" Wharton.

5e apparatus — Carried into the 5th edition (1979).

## GARTH.

In English law. A yard ; a lit- tle close or homestead in the north of Eng- land. Cowell ; Blount.

A dam or wear in a river, for the catching of fish.

5e apparatus — Carried into the 5th edition (1979).

## GARYTOUR.

In old Scotch law. Ward- er. 1 Pltc. Crim. Tr. pt 1, p. 8.

5e apparatus — Not carried into the 5th edition (1979).

## GA8T ALDUS.

A temporary governor of the country. Blount A bailiff or steward. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GASTEL.

L. Fr. Wastel ; wastel bread ; the finest sort of wheat bread. Britt c. 30 i rfelham.

5e apparatus — Not carried into the 5th edition (1979).

## GASTINE.

L. Fr. Waste or uncultivat- ed ground. Britt, c. 57.

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## GAUDIES.

A term used in the English universities to denote double commons.

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## GAUGE.

The measure of width of a rail- way, fixed, with some exceptions, at 4 feet 8% Inches in Great Britain and America, and 5 feet 3 Inches in Ireland.

5e apparatus — Not carried into the 5th edition (1979).

## GAUGEATOR.

A gauger. Lowell.

5e apparatus — Not carried into the 5th edition (1979).

## GAUGER.

A surveying officer under the customs, excise, and internal revenue laws, appointed to examine all tuns, pipes, hogs- heads, barrels and tierces of wine, oil, and other liquids, and to give them a mark of allowance, as containing lawful measure. There are also private gaugers in large sea- port towns, who are licensed by government to perform the same duties. Rapal. & L.

5e apparatus — Carried into the 5th edition (1979).

## GAUGETUM.

A gauge or gauging; a measure of the contents of any vessel.

5e apparatus — Not carried into the 5th edition (1979).

## GAVEL.

In English law. Custom ; trib- ute ; toll ; yearly rent ; payment of revenue ; of which there were anciently several sorts ; as gavel-com, gavel-malt, oat-garel, gavel- fodder, etc. Termes de la Ley ; Cowell ; Co. Litt. 142a.

— Gavelbrod. Rent reserved in bread, corn, or provision ; rent payable in kind. Cowell. — Gaveloester. A certain measure of rent- ale. Cowell. — Gavelgeld. That which yields annual profit or toll. The tribute or toll itself. Cowell ; Du Cange. — GaveLherte. A service of plowing performed by a customary tenant Cowell ; Du Cange. — Gaveling men. Tenants who paid a reserved rent, besides some custo- mary duties to be done by them. Cowell.— Gavel-man. A tenant liable to the payment of gavel or tribute. Somn. Gavelkind, 23.— Gavelmed. A customary service of mowing meadow-land or cutting grass, (consurtudo fal- candi.) Blount. — Gavelrep. Bedreap or bid- reap; the duty of reaping at the bid or com- mand of the lord. Somn. Gavelkind, 19. 21 ; Cowell.— Gavelwerk. A customary service, either manuopera. by the person of the ten- ant, or carropcra, by his carts or carriages. Blount; Somn. Gavelkind, 24; Du Cange.

5e apparatus — Carried into the 5th edition (1979).

## GAVELET.

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An ancient and special kind of ctssai it, used In Kent and London for the recovery of rent. Obsolete. The statute of gavelet Is 10 Edw. II. 2 Reeve, Eng. I.nw, c. 12, p. 298. See Emig v. Cunningham, 62 Md. 460.

5e apparatus — Not carried into the 5th edition (1979).

## GAVELKIND.

A species of socage ten- ure common In Kent, In England, where the lands descend to all the sons, or heirs of the nearest degree, together ; may be disposed of by will ; do not escheat for felony ; may be aliened by the heir at the age of fifteen ; and dower and curtesy is given of half the land. Stim. Law Gloss.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: intestacy statutes — per stirpes/per capita equal distribution among heirs]**

Gavelkind's partible descent — lands dividing among all sons rather than passing to the eldest — is the ancestor of modern equal-share intestate distribution.

Why: Genuine lineage: the Kentish custom of partible inheritance and modern equal-share intestacy share the same distributive principle. Loose form.

## GAVELLER.

An officer of the English crown having the general management of the mines, pits, and quarries in the Forest of Dean and Hundred of St. Briavel’s, subject, in some respects, to the control of the com- missioners of woods and forests. lie grants gales to free miners in their proper order, accepts surrenders of gales, and keeps the registers required by the acts. There is a deputy-gaveller, who appears to exercise most of the gaveller’s functions. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## GAZETTE.

The official publication of the English government, also called the “Lon- don Gazette.” It Is evidence of acts of state, and of everything done by the king in his political capacity. Orders of adjudica- tion in bankruptcy are required to be pub- lished therein ; and the production of a copy of the “Gazette,” containing a copy of the order of adjudication, Is evidence of the fact Mozley A TVhltley.

5e apparatus — Not carried into the 5th edition (1979).

## GEBOGOED.

An Anglo-Saxon term, meaning “conveyed.”

5e apparatus — Not carried into the 5th edition (1979).

## GEBOCIAN.

In Saxon law. To convey ; to transfer boo land, (book-land or land held by charter.) The grantor was said to gebo- dan the alienee. See 1 Reeve, Eng. Law, 10.

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**[Scripture] — Scripture**

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**[Ruth 4:7, KJV]**

Now this was the manner in former time in Israel concerning redeeming and concerning changing, for to confirm all things; a man plucked off his shoe, and gave it to his neighbour: and this was a testimony in Israel.

Why: Gebocian is to convey — to transfer book-land. The verse records scripture's own form of conveyance: the witnessed, ceremonial act 'to confirm all things' by which land passed — conveyance as a formal testified act.

## GEBURSCRIPT.

In old English law. Neighborhood or adjoining district. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GEBURUS.

In old English law. A coun- try neighbor ; an inhabitant of the same geb- urscript, or village. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GELD.

In Saxon law. Money or tribute. A mulct, compensation, value, price. Angeld was the single value of a thing; twigeld, double value, etc. So, t ceregeld was the val- ue of a man slain ; orfgeld, that of a beast Brown. ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:32, KJV]**

If the ox shall push a manservant or a maidservant; he shall give unto their master thirty shekels of silver, and the ox shall be stoned.

Why: Geld is the money-value set on a thing or a man — weregeld the value of a slain man. The verse fixes such a value in God's judgments: thirty shekels of silver for the gored servant — the biblical form of the weregeld.

## GELDABILIS.

In old English law. Tax- able ; geldable.

5e apparatus — Not carried into the 5th edition (1979).

## GELD  ABLE.

Liable to pay geld; liable to be taxed. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## GELDING.

A horse that has been cas- trated, and which is thus distinguished from the horse in his natural and unaltered condition. A “rtdgllng” (a half-castrated horse) Is not a gelding, but a horse, within the de- nomination of animals in the statutes. Bris- co v. State, 4 Tex. App. 219, 30 Am. Rep. 162.

5e apparatus — Carried into the 5th edition (1979).

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## GEMMA.

Lat. In the civil law. A gem; a precious stone. Gems were distin- guished by their transparency ; such as em- eralds, chrysolites, amethysts. Dig. 34, 2, 19, 17.

5e apparatus — Not carried into the 5th edition (1979).

## GEMOT.

In Saxon law. A meeting or moot ; a convention ; a public assemblage. These were of several sorts, such, as the witena-gemot, or meeting of the wise men; the folc-gemot, or general assembly of the people ; the shire-gemot, or county court ; the burg-gemot, or borough court; the hundred- gemot, or hundred court ; the hali-gemot, or court-baron ; the hat-mote, a convention of citizens in their public hall ; the holy-mote, or holy court; the sicein-gcinotc, or forest court ; the ward-mote, or ward court. Whar- ton ; Cunningham.

5e apparatus — Not carried into the 5th edition (1979).

## GENEARCH.

The head of a family.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 11:3, KJV]**

But I would have you know, that the head of every man is Christ; and the head of the woman is the man; and the head of Christ is God.

Why: The genearch is the head of a family. The verse lays down the headship order — the biblical form of family headship, ascending from the household to God.

## GENEATH.

In Saxon law. A villein, or agricultural tenant, ( villaniis vitlicus;) a hind or farmer, (firmarius rustic it#.) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GENER.

Lat. In the civil law. A son- in-law; a daughter’s husband. (Filiw vir.) Dig. 38, 10, 4, 6.

5e apparatus — Not carried into the 5th edition (1979).

## GENERAL.

Pertaining to, or designat- ing, the genus or class, as distinguished from that which characterizes the species or indi- vidual. Universal, not particularized ; as op- posed to special. Principal or central ; as opposed to local. Open or available to all, as opposed to select. Obtaining commonly, or recognized universally ; as opposed to par- ticular. Universal or unbounded; as oppos- ed to limited. Comprehending the whole, or directed to the whole ; as distinguished from anything applying to or designed for a por- tion only.

As a noun, the word Is the title of a prin- cipal officer In the army, usually one who commands a whole army, division, corps, or brigade. In the United States army, the rank of “general” Is the highest possible, next to the commander in chief, aud is only occasionally

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created. The officers next In rank are lieutenant general, major general, and brigadier general.

—General assembly. A name given in some of the United States to the senate and house of representatives, which compose the legis- lative body. See State v. Gear, 5 Ohio Dee. raW.— General council. (1) A council con- sisting of members of the Roman Catholic Church from most parts of the world, but not from every part, as an ecumenical council. (2) One of the names of the English parliament.— General court. The name given to the leg- islature of Massachusetts and of New Hamp- shire, in colonial times, and subsequently by their constitutions; so called because the

colonial legislature of Massachusetts grew out of the general court or meeting of the Massa- chusetts Company. Cent. Diet. See Citizens' Sav. & Loan Ass'n v. Topeka, 20 Wall. 666, 22 L. Ed. 455. — General credit. The char- acter of a witness as one generally worthy of credit. According to Bouvier, there is a dis- tinction between this and "particular credit," which may be affected by proof of particular facts relating to the particular action. See Bemis v. Kyle, 5 Abb. Prac. (N. S.) (N. Y.) 233. — General field. Several distinct lots or pieces of land inclosed and fenced in as one Common field. Mansfield v. Hawkes. 14 Mass. 440.— General inolosnre act. The statute 41 Geo. III. c. 109, which consolidates a num- ber of regulations as to the inclosure of com- mon fields and waste lands.— General Inter- est. In speaking of matters of public and gen- eral Interest, the terms "public" and "general" are sometimes used as synonyms. But in re- gard to the admissibility of hearsay evidence, a distinction has been taken between them, the term "public" being strictly applied to that which concerns every member of the state, and the term "general" being confined to a lesser, though still a considerable, portion of the community. Tayl. Ev. § 609.— General land- office. In the United States, one of the bur- eaus of the interior department, which has charge of the survey, sale, granting of patents, and other matters relating to the public lands.

As to general "Acceptance," "Administra- tion," "Agent," "Appearance," "Assignment," "Average," "Benefit," "Challenge," "Charac- ter," "Charge," "Covenant," "Creditor," "Cus- tom," "Damages," "Demurrer," "Denial," "Deposit," "Devise," "Election," "Execution," "Executor," "Finding," "Fund," "Gaol Deliv- ery," "Guardian," "Imparlance," "Insurance," "Intent," "Issue," "Jurisdiction," "Law," "Legacy," "Letter of Credit," "Lien," "Mal- ice," "Meeting," "Monition," "Mortgage," "Occupant," "Orders," "Owner," "Partner- ship," "Power," "Property," "Replication," "Restraint of Trade," "Retainer," "Return Day," "Rules," "Sessions," "Ship," "Statute," "Tail," "Tenancy," "Term," "Traverse," "Us- age," "Verdict," "Warrant," and "Warranty," see those titles.

GEHEKAL£. The usual commons in a religious house, distinguished from pietan- Ha, which on extraordinary occasions were allowed beyond the commons. Cowell.

Generate dictum generaliter eat inter- pretandnm. A general expression is to be interpreted generally. 8 Coke, 116a.

Generate nihil ccrtum implicat. A gen- eral expression implies nothing certain. 2 Coke, 346. A general recital in a deed has not the effect of an estoppel. Best, Ev. p. 408, S 370.

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Generate tan turn valet in generalibns, quantum singulars in (in gulls. What is general is of as much force among general things as what is particular Is among things particular. 11 Coke, 596.

General la prseoedunt, special ia sequun- tnr. Things general precede, things special follow. Reg. Brev. ; Branch, Princ.

Gene r alia speeialibut non derogant.

Jenk. Cent. 120, cited L. R. 4 Exch. 226. General words do not derogate from special.

Generalia sunt prseponenda singulari- bus. Branch, Princ. General things are to precede particular things.

Generalia verba sunt generaliter Intel- ligent!*. General words are to be under- stood generally, or In a general sense. 3 Inst 76; Broom, Max. 647.

Generalibns speoialla derogant. Spe- cial things take from generals. Halk. Lat Max. 51.

Generalia clausula non porrigltnr ad ea quse an tea special! ter sunt oompre- hensa. A general clause does not extend to those things which are previously provid- ed for specially. 8 Coke, 1546. Therefore, where a deed at the first contains special words, and afterwards concludes In general words, both words, as well general as special, shall stand.

Generalia regula generaliter est Intel- ligenda. A general rule is to be understood generally. 6 Coke, 65.

5e apparatus — Carried into the 5th edition (1979).

## GENERALS OF ORDERS.

Chiefs of the several orders of monks, friars, and other religious societies.

5e apparatus — Not carried into the 5th edition (1979).

## GENE RATIO.

The issue or offspring of

a mother-monastery. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GENERATION.

May mean either a de- gree of removal in computing descents, or a single succession of living beings in natural descent McMillan v. School Committee, 197

N. C. 609, 12 S. E. 330, 10 L. R. A. 823.

5e apparatus — Carried into the 5th edition (1979).

## GENEROSUS.

Lat Gentleman; a gen- tleman. Spelman.

— Generosa. Gentlewoman. Cowell; 2 Inst. 668.— Generosi flllus. The son of a gentle- man. Generally abbreviated "gen. fit.”

5e apparatus — Not carried into the 5th edition (1979).

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## GENICTJLUM.

A degree of consanguin- ity. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GENS.

Lat. In Roman law. A tribe or clan ; a group of families, connected by com- mon descent and bearing the same name, be- ing all free-born and of free ancestors, and in possession of full civic rights.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 1:2, KJV]**

Take ye the sum of all the congregation of the children of Israel, after their families, by the house of their fathers, with the number of their names, every male by their polls;

Why: Gens is the tribe or clan — families joined by common descent and name. Israel's muster 'after their families, by the house of their fathers' is the biblical form of it, commanded by God for the census.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Graves, I, Claudius, 1934]**

(paraphrase) The novel narrates the Julio-Claudian gens from the inside — the Roman clan as a political organism across generations. (paraphrase)

Why: Genuine: the novel is literally the history of a gens; the entry's Roman-law sense (tribe/clan of families) matches exactly.

## GENTES.

Lat People. Contra omne» gent ex, against all people. Bract. Jfol. 376. Words used In the clause of warranty in old deeds.

5e apparatus — Not carried into the 5th edition (1979).

## GENTILES.

In Roman law. The mem- bers of a gens or common tribe.

5e apparatus — Not carried into the 5th edition (1979).

## GENTLEMAN.

In English law. A per- son of superior birth.

Under the denomination of “gentlemen” are comprised all above yeoman; whereby noblemen are truly called “gentlemen.” Smith de Rep. Ang. lilj, 1, cc. 20, 21.

A “gentleman’* is defined to be one who, without any title, beare a coat of arms, or whose ancestors have been freemen ; and, by the coat that a gentleman giveth, he is known to be, or not to be, descended from those of his name that lived many hundred years since. Jacob. See C res son v. C reason, 6 Fed. Gas. 809.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Great Expectations, 1861]**

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(paraphrase) Pip's 'great expectations' are the project of being made a gentleman — birth, manners, and money — the English imagination's fullest working-through of the entry's 'person of superior birth.' (paraphrase)

Why: Genuine: the novel turns on exactly the legal-social category the entry defines.

## GENTLEMAN USHER.

One who holds a post at court to usher others to the pres- ence, etc.

5e apparatus — Not carried into the 5th edition (1979).

## GENTLEWOMAN.

A woman of birth above the common, or equal to that of a gen- tleman; an addition of a woman’s state or degree.

5e apparatus — Carried into the 5th edition (1979).

## GENTOO LAW.

See Hindu Law.

5e apparatus — Not carried into the 5th edition (1979).

## GENUINE.

As applied to notes, bonds, and other .written instruments, this term means that they are truly what they pur- port to be, and that they are not false, forged, fictitious, simulated, spurious, or counterfeit Baldwin v. Van Deusen, 37 N. Y. 492 ; Smelt- aer v. White, 92 U. S. 392, 23 L. Ed. 508 ; Dow v. Spenny, 29 Mo. 390; Cox v. North- western Stage Co., 1 Idaho, 379.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forgery and counterfeiting statutes]**

Instruments that are not 'truly what they purport to be' — false, forged, or counterfeit — are the subject of the criminal law of forgery and counterfeiting.

Why: Genuine: the statutes punish exactly the falsity the entry's definition excludes. Loose form; no statute number invented.

## GENUS.

In the civil law. A general class or division, comprising several species, in toto jure generi per speciem derogatur, et illud potissimum habetur quod ad spcciem directum est, throughout the law, the species takes from the genus, and that Is most par- ticularly regarded which refers to the species. Dig. 50, 17, 80.

A man’s lineage, or direct descendants.

In logic, it is the first of the universal ideas, and is when the idea is so common that it extends to other ideas which are also universal; e. g., incorporeal hereditament is genus with respect to a rent, which is species. Woolley, Introd. Log. 45; 1 Mill, Log. 133.

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## GEORGE-NOBLE.

An EMgllsh gold coin, value 6s. 8d.

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## GEREOHT8BODE.

In old New York law. A court messenger or constable. O’Cal- laghan, New Neth. 322.

5e apparatus — Not carried into the 5th edition (1979).

## GEREFA.

In Saxon law. Greve, reve, or reeve; a ministerial officer of high antiq- uity in England; answering to the grave or graf ( graflo ) of the early continental nations. The term was applied to various grades of officers, from the scgre-gerefa, shirc-grefe, or shire-reve, who had charge of the county, ■land whose title and office have been perpet- uated in the modern "sheriff,”) down to the tun-gerefa, or town-reeve, and lower. Burrill.

5e apparatus — Not carried into the 5th edition (1979).

## GERENS.

Bearing. O evens datum, bear- ing date. l'Ld. Raym. 336; Hob. 19.

5e apparatus — Not carried into the 5th edition (1979).

## GERMAN.

Whole, full, or own, in re- spect to relationship or descent Brothersgerman, as opposed to half-brothers, are those who have both the same father and mother. Cousins-german are “first” cous- ins; that is, children of brothers or sisters.

5e apparatus — Carried into the 5th edition (1979).

## GERM ANUS.

Lat. Descended of the same stock, or from the same couple of an- cestors; of the whole or full blood. Mackeld. Rom. Law, f 145.

5e apparatus — Not carried into the 5th edition (1979).

## GERMEN TERRAS.

Lat. A sprout of the earth. A young tree, so called.

5e apparatus — Not carried into the 5th edition (1979).

## GERONTOCOMI.

In the civil law. Offi- cers appointed to manage hospitals for the aged poor.

5e apparatus — Not carried into the 5th edition (1979).

## GERONTOCOMIUM.

In the civil law. An institution or hospital for taking care of the old. Cod. 1, 3, 46, 1 ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Leviticus 19:32, KJV]**

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Thou shalt rise up before the hoary head, and honour the face of the old man, and fear thy God: I am the LORD.

Why: A gerontocomium is an institution for taking care of the old. The verse is God's own command of that care's moral root: rise before the hoary head, honour the old — 'I am the LORD.'

## GERRYMANDER.

A name given to the process of dividing a state or other territory into the authorized civil or political divi- sions, but with such a geographical arrange- ment as to accomplish a sinister or unlawful purpose, as, for instance, to secure a majority for a given political party in districts where the result would be otherwise if they were divided according to obvious natural lines, or to arrange school districts so that children of certain religions or nationalities shall be brought within one district and those of a different religion or nationality in another district. State v. Whitford, 54 Wis. 150, 11

N. W. 424.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Shaw v. Reno, 509 U.S. 630 (1993)]**

The 'sinister or unlawful purpose' districting the entry defines — including packing districts by race, religion, or nationality — is unconstitutional when drawn predominantly on racial lines, violating equal protection.

Why: Genuine: Shaw is the modern authority striking down racial gerrymandering, directly on the entry's 'unlawful purpose' examples.

**[Scripture] — Scripture**

**[Isaiah 10:1, KJV]**

Woe unto them that decree unrighteous decrees, and that write grievousness which they have prescribed;

Why: Gerrymander is the drawing of political lines to accomplish a sinister purpose — a decree of grievousness by cartography. Isaiah's woe falls on exactly that genus: 'them that decree unrighteous decrees, and that write...

## GER8UMARIU8.

In old English law. Finable; liable to be amerced at the discre- tion of the lord of a manor. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GERSUME.

In old English law. Ex- pense; reward ; compensation ; wealth. It is also used for a fine or compensation for an offense. 2 Mon. Angl. 973.

5e apparatus — Not carried into the 5th edition (1979).

## GE8T.

In Saxon law. A guest A name given to a stranger on the second night of his entertainment in another's house. Two- night gest.

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**[Scripture] — Scripture**

**[Matthew 25:35, KJV]**

I was a stranger, and ye took me in:

Why: A gest is the stranger-guest entertained in another's house. Christ counts 'I was a stranger, and ye took me in' among the works by which the righteous are known — the guest received as Christ himself.

## GESTATION, UTERO-GESTATION.

In medical Jurisprudence. The time during which a female, who has conceived, carries the embryo or foetus in her uterus.

5e apparatus — Not carried into the 5th edition (1979).

## GESTIO.

In the civil law. Behavior or conduct.

Management or transaction. Negotiorum gestio, the doing of another's business; an interference in the affairs of another in his absence, from benevolence or friendship, and without authority. Dig. 3, 5, 45; Id. 46, 3, 12, 4 ; 2 Kent, Comm. 616, note.

— Gestio pro luerede. Behavior as heir. This expression was used in the Roman law, and adopted in the civil law and Scotch law, to denote conduct on the part of a person ap- pointed heir to a deceased person, or otherwise entitled to succeed as heir, which indicates an

intention to enter upon the inheritance, and to hold himself out as heir to creditors of the deceased; as by receiving the rents due to the deceased, or by taking possession of his title- deeds, etc. Such acts will render the heir lia- ble to the debts of his ancestor. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:34-35, KJV]**

And went to him, and bound up his wounds, pouring in oil and wine, and set him on his own beast, and brought him to an inn, and took care of him. And on the morrow when he departed, he took out two pence, and gave them to the host, and said unto him, Take care of him; and whatsoever thou spendest more, when I come again, I will repay thee.

Why: Negotiorum gestio is doing another's business unasked, from benevolence, without authority. The Samaritan — binding, carrying, paying the host, answering for more — is the biblical form of managing another's affair wi...

## GESTOR.

In the civil law. One who acts for another, or transacts another's busi- ness. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## GESTU ET FAUA.

An ancient and ob- solete writ resorted to when a person’s good behavior was impeached. Lamb. Elr. 1. 4, c. 14.

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## GESTUM.

Lat. In Roman law. A deed or act; a thing done. Some writers affected to make a distinction between “gestum" and “factum.” But the best authorities pro- nounced this subtile and Indefensible. Dig. 50, 16, 58.

GEVILLOtTRIS. In old Scotch law. Gaolers. 1 Pltc. Crlm. Tr. pt. 2, p. 234.

5e apparatus — Not carried into the 5th edition (1979).

## GEWINEDA.

In Saxon law. The an- cient convention of the people to decide a cause.

5e apparatus — Not carried into the 5th edition (1979).

## GEWITNESSA.

In Saxon and old Eng- lish law. The giving of evidence.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: Gewitnessa is the giving of evidence. The verse is scripture's foundational evidence rule: no matter established without two or three witnesses — the biblical form of testimonial sufficiency.

## GE WRITE.

In Saxon law. Deeds or charters; writings. 1 Reeve, Eng. Law, 10.

5e apparatus — Not carried into the 5th edition (1979).

## GIBBET.

A gallows; the post on which malefactors are hanged, or on which their bodies are exposed. It differs from a com- mon gallows, in that It consists of one per- pendicular post, from the top of which pro- ceeds one arm, except it be a double gibbet, which is formed In the shape of the Roman capital T. Enc. Loud.

GIBBET LAW, Lynch law; in particu- lar a custom anciently prevailing in the par- ish of Halifax, England, by which the free burghers held a summary trial of any one ac- cused of petit larceny, and. If they found him guilty, ordered him to be decapitated.

5e apparatus — Carried into the 5th edition (1979).

## GIFT.

A voluntary conveyance of land, or transfer of goods, from one person to an- other, made gratuitously, and not upon any consideration of blood or money. 2 Bl. Comm. 440 ; 2 Steph. Comm. 102; 2 Kent, Comm. 437. And see Ingram v. Colgan, 106 Cal. 113, 38 Pac. 315, 28 L. R. A. 187, 46 Am. St. Rep. 221; Gray v. Barton, 55 N. T. 72, 14 Am. Rep. 181 ; Williamson v. Johnson, 62 Vt. 378, Atl. 279, 9 L. R. A. 277, 22 Am. St. Rep. 117 ; Flanders v. Blandy, 45 Ohio St. 113, 12

N. E. 321.

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A gift is a transfer of personal property, made voluntarily and without consideration. Civil Code Cal. g 1146.

In popular language, a voluntary convey- ance or assignment is called a “deed of gift.”

“Gift” and “advancement” are sometimes used interchangeably as expressive of the same operation. But, while an advancement is always a gift, a gift Is very frequently not an advancement. In re Dewees' Estate, 3 Brewst (Pa.) 314.

In English law. A conveyance of lands in tall; a conveyance of an estate tail in which the operative words are “1 give,” or “I have given." 2 Bl. Comm. 316; 1 Steph. Comm. 473.

— Absolute gift, as distinguished from one made in contemplation of death, is one by which the donee becomes in the lifetime of the donor the absolute owner of the thing given, whereas a donatio mortis causa leaves the whole title in the donor, unless the event occurs (the death of the donor) which is to divest him. Buecker v. Carr. 60 N. J. Eq. 300, 47 Atl. 34. As die- ttiiguished from a gift in trust, it is one where not only the legal title but the beneficial own- ership as well is vested in the donee. Watkins v. Bigelow. 93 Minn. 210. 100 N. W. 1104.— Gift enterprise. A scheme for the division or distribution of certain articles of property, to be determined by chance, among those who have taken shares in the scheme. The phrase has attained such a notoriety as to justify a. court in taking judicial notice of wbat is meant and understood by it. Lohman v. State, 81 Ind. 17 ; Lansburgh v. District of Columbia, 11 App. D. C. 524 ; State v. Shugart. 138 Ala. 86, 3b South. 28. 100 Am. St Rep. 17; Win- ston v. Beeson, 1.35 N. C. 2d. 47 S. L. 457, 65 L. R. A. 167.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: elements of a valid inter vivos gift — donative intent, delivery, acceptance]**

The voluntary gratuitous transfer the entry defines is legally effective only where three elements concur: donative intent, delivery, and acceptance.

Why: Genuine: the elements test every 'voluntary conveyance... made gratuitously' the entry names. Loose form; no invented case.

**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for God loveth a cheerful giver.

Why: A gift in law is a transfer 'voluntarily and without consideration.' The verse states the same act in morals: giving purposed in the heart, 'not grudgingly, or of necessity' — the gratuitous transfer's inner form.

**[Humanity] — Humanity / Fiction & Film**

**[O. Henry, "The Gift of the Magi", 1905]**

(paraphrase) Della sells her hair and Jim his watch, each to buy the other's Christmas gift — the short story of voluntary giving whose irony (each gift unmakes the other's use) turns on the entry's act. (paraphrase)

Why: Genuine: the story is named for the entry's act and turns on its voluntariness.

## GIFTA AQUA.

The stream of water to a mill. Mon. Angl. tom. 3.

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5e apparatus — Not carried into the 5th edition (1979).

## GIFTOMAN.

In Swedish law. The right to dispose of a woman in marriage; or the person possessing such right, — her father, if living, or, if he be dead, the mother.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 7:38, KJV]**

So then he that giveth her in marriage doeth well; but he that giveth her not in marriage doeth better.

Why: The giftoman holds the right to dispose of a woman in marriage. The verse names his office in the act itself: 'he that giveth her in marriage' — the giver whose right it is to give.

## GILD.

In Saxon law. A tax or tribute. Spelman.

A fine, mulct, or amerciament; a satisfac- tion or compensation for an injury.

A fraternity, society, or company of per- sons combined together, under certain regu- lations, and with the king’s license, and so called because its expenses were defrayed by the contributions ( geld , gild) of its members. Spelman. In other words, a corporation; called, in Latin, “ socictas ,” “ collegium ,"

“ fratria ,” “ fratemitas .” “sodalillum,” “adu- natio;” and, In foreign law, “gildonia.” Spelman. There were various kinds of these gilds, as merchant or commercial gilds, re- ligious gilds, and others. 3 Turn. Anglo Sax. 98; 3 Steph. Comm. 173, note «. See Gilda Mebcatoria.

A friborg, or decennary; called, by the Saxons, “gvldscipcs,” and its members, “gil- doncs” and " congildoncs .” Spelman.

— Gild-hnll. See Guildhall.— Gild-rent. Certain payments to the crown from any gild or fraternity.

5e apparatus — Not carried into the 5th edition (1979).

## GILDA MERCATORIA.

A gild mer- chant, or merchant gild ; a gild, corporation, or company of merchants. 10 Coke, 30.

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## GILD ABLE.

In old English law. Tax- able, tributary, or contributory; liable to pay tax or tribute. Cowell ; Blount.

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## GILDO.

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In Saxon law. Members of a gild or decennary. Oftener spelled “con- gildo." Du Cange; Spelman.

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## GILOUR.

L. Fr. A cheat or deceiver. Applied In Britton to those who sold false or spurious things for good, as pewter for sil- ver or laten for gold. Britt, c. 15.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: A gilour sells the false for the good — pewter for silver: commercial deceit in the wares themselves. The false balance is scripture's type of that deceit, and it is 'abomination to the LORD.'

## GIRANTE.

An Italian word, which sig- nifies the drawer of a bill. It is derived from “girare," to draw.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Art. 3 — negotiable instruments; the drawer's liability]**

The drawer of a bill engages that the instrument will be accepted and paid; the drawer's liability is governed by the law of negotiable instruments.

Why: Genuine: Article 3 is the uniform-law home of the bill-drawer the entry defines. Loose form.

## GIRTH.

In Saxon and old English law. A measure of length, equal to one yard, de- rived from the girth or circumference of a man’s body.

GIRTH AND SANCTUARY . In old

Scotch law. An asylum given to murderers, where the murder was committed without any previous design, and in chaude mella, or beat of passion. Bell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:11, KJV]**

Then ye shall appoint you cities to be cities of refuge for you; that the slayer may flee thither, which killeth any person at unawares.

Why: Girth and sanctuary is asylum for the murder 'without any previous design' — the undesigned killing. The cities of refuge are appointed by God precisely for him 'which killeth any person at unawares': the biblical for...

## GISEMENT.

L. Fr. Agistment; cattle taken in to graze at a certain price; also the money received for grazing cattle.

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## GISER.

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L. Fr. To lie. Gist en le touche, it lies in the mouth. Le action bien gist, the action well lies. Gisant, lying.

5e apparatus — Not carried into the 5th edition (1979).

## GISETAKER.

An agister ; a person who takes cattle to graze.

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## GISLE.

In Saxon law. A pledge. Fred- gisle, a pledge of peace. Qislebert, an illus- trious pledge.

5e apparatus — Not carried into the 5th edition (1979).

## GIST.

In pleading. The essential ground or object of the action in point of law, with- out which there would be no cause of action. Gould, Pl. c. 4, $ 12; Hathaway v. Bice, 19 Vt. 102.

The gist of an action is the cause for which an action will lie; the ground or foun- dation of a suit, without which it would not be maintainable; the essenlal ground or ob- ject of a suit, and without which there is not a cause of action. First Nat. Bank v. Bur- kett, 101 111. 391, 40 Am. Rep. 209; Hoffman v. Knight, 127 Ala. 149, 28 South. 593 ; Tar- bell v. Tarbell, 60 Vt. 486, 15 Atl. 104.

GIVE. 1. To transfer or yield to, or be- stow upon, another. One of the operative words in deeds of conveyance of real prop- erty, Importing at common law, a warranty or covenant for quiet enjoyment during the lifetime of the grantor. Mack v. Patchin, 29 How. Prae. (N. Y.) 23; Young v. Hargrave, 7 Ohio, 69, pt 2 ; Dow v. Lewis, 4 Gray (Mass.) 473.

8. To bestow upon another gratuitously or without consideration.

In their ordinary and familiar signification, the words “sell” and “give” have not the same

meaning, but are commonly used -to express different modes of transferring the right to property from one person to another. “To sell’’ means to transfer for a valuable consider- ation, while “to give” signifies to transfer gra- tuitously, without any equivalent. Parkinson v. State, 14 Md. 184. 74 Am. Dec. 522.

—Give and bequeath. These words, in a will, import a benefit in point of right, to take effect upon the decease of the testator and proof or the will, unless it is made in terms to depend upon Borne' contingency or condition precedent. Eldridge v. Eldridge, 9 Cush. (Mass.) 519.— Give bail. To furnish or put in bail or security for one’s appearance. — Give color. To admit an apparent or colorable right in the opposite party. See Colob.— Give Judgment. To render, pronounce, or declare the judgment of the court in an action at law ; not spoken of a judgment obtained by confession. Schuster v. Rader, 13 Colo. 329, 22 Pac. 505.— Give notice. To communi- cate to another, in any proper or nermissible legal manner, information or warning of an existing fact or state of facts or (more usually) of some intended future action. See O’Neil v. Dickson, 11 Ind. 254; In re Devlin, 7 Fed. Cas. 564; City Nat. Bank v. Williams, 122 Mass. 53a.— Give time. The act of a creditor in extending the time for the

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payment or satis- faction of a claim beyond the time stipulated in the original contract. If done without the consent of the surety, indorser, or guarantor, it discharges him. Howell v. Jones, 1 Cromp. M. Sc R. 107 ; Shipman v. Kelley. 9 App. Div. 316, 41 N. Y. Supp. 339.—Give way. In the rules of navigation, one vessel is said to “give way’’ to another when she deviates from her course in such a manner and to such an extent as to allow the other to pass without altering her course. See Lockwood v. Lashell, 19 Pa. 350.

5e apparatus — Not carried into the 5th edition (1979).

## GIVER.

A donor; he who makes a gift.

5e apparatus — Carried into the 5th edition (1979).

## GIVING IN PAYMENT.

In Louisiana law. A phrase (translating the Fr. “dation en payement ”) which signifies the delivery and acceptance of real or personal property in satisfaction of a debt, Instead of a pay- ment in money. See Civil Code La. art 2655.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: accord and satisfaction]**

The Louisiana dation en paiement — delivery and acceptance of property 'in satisfaction of a debt, instead of a payment in money' — is the civil-law form of the common-law accord and satisfaction.

Why: Genuine: definitional identity between the entry's translated phrase and the common-law doctrine; the link is textual, not decorative.

## GIVING RINGS.

A ceremony anciently performed in England by Serjeants at law at the time of their appointment. The rings were inscribed with a motto, generally in Latin.

5e apparatus — Not carried into the 5th edition (1979).

## GLADIOLUS.

A little sword or dagger; a kind of sedge. Mat. Paris.

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## GLADIUS.

Lat. A sword. An ancient emblem of defense. Hence the ancient earls or comites (the king’s attendants, advisers, and associates in his government) were made by being girt with swords, (gladio succincti.)

The emblem of the executory power of the law in punishing crimes. 4 Bl. Comm. 177.

In old Latin authors, and in the Norman laws, this word was used to signify supreme Jurisdiction, (jus gladii.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Romans 13:4, KJV]**

for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: Gladius is the sword as emblem of the law's executory power in punishing crimes. The verse states the emblem's meaning outright: the ruler 'beareth not the sword in vain' — a revenger to execute wrath on the evildoer.

## GLAIVE.

A sword, lance, or horseman’s staff. One of the weapons allowed in a trial by combat.

5e apparatus — Not carried into the 5th edition (1979).

## GLAN8.

In the civil law. Acorns or nuts of the oak or other trees. In a larger sense, all fruits of trees.

5e apparatus — Not carried into the 5th edition (1979).

## GLASS-MEN.

A term used In St. 1 Jac.

I. c. 7, for wandering rogues or vagrants.

5e apparatus — Not carried into the 5th edition (1979).

## GLATBA.

A hand dart Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GLEAMING.

The gathering of grain aft- er reapers, or of grain left ungathered by reapers. Held not to be a right at common law. 1 H. Bl. 51.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:9-10, KJV]**

And when ye reap the harvest of your land, thou shalt not wholly reap the corners of thy field, neither shalt thou gather the gleanings of thy harvest. And thou shalt not glean thy vineyard, neither shalt thou gather every grape of thy vineyard; thou shalt leave them for the poor and stranger: I am the LORD your God.

Why: Gleaming is gleaning — the gathering left after the reapers. The verse is God's own institution of it: the corners and gleanings 'shalt thou leave for the poor and stranger.' Notably, the entry records the common law…

## GLEBA.

A turf, sod, or clod of earth. The soil or ground; cultivated land In gen- eral. Church land, ( solum et dos ecclesies.) Spelman. See Glebe.

GLEB IE ASCRXPTTm. Villein-socmen, who could not be removed from the land while they did the service due. Bract, c. 7; 1 Reeve, Eng. Law, 269.

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## GLEBABL2E.

Turfs dug out of the ground. Cowell.

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## GLEBE.

In eoolesiaitioal law. The

land possessed as part of the endowment or revenue of a church or ecclesiastical benefice.

In Roman law. A Clod ; turf ; soil. Hence, the soil of an inheritance; an agra- rian estate. Servi addicti glebes were serfs attached to and passing with the estate. Cod. 11, 47, 7, 21 ; Nov. 54, 1.

5e apparatus — Not carried into the 5th edition (1979).

## GLISCTWA.

In Saxon law. A frater- nity.

5e apparatus — Not carried into the 5th edition (1979).

## GLOMERELLS.

Commissioners appoint- ed to determine differences between scholars in a 'school or university and the townsmen of the place. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:5, KJV]**

Is it so, that there is not a wise man among you? no, not one that shall be able to judge between his brethren?

Why: Glomerells are commissioners appointed to determine differences between parties — private judges. The verse calls for exactly that office: 'one that shall be able to judge between his brethren' rather than going to law.

## GLOS.

Lat. In the civil law. A hus- band’s sister. Dig. 38, 10, 4, 6.

5e apparatus — Not carried into the 5th edition (1979).

## GLOSS.

An interpretation, consisting of one or more words, interlinear or marginal ; an annotation, explanation, or comment on any passage in the text of a work, for pur- poses of elucidation or amplification. Par- ticularly applied to the comments on the Cor- l>U8 Juris.

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## GLOSSA.

Lat A gloss, explanation, or Interpretation. The glosses of the Roman law are brief illustrative comments or anno- tations on the text of Justinian's collections, made by the professors who taught or lec- tured on them about the twelfth century, (especially at the law school of Bologna,) and were hence called “glossators." These gloss- es were at first inserted In the text with the words to which they referred, and were call- ed “ glosses

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interlincarcs but afterwards they were placed In the margin, partly at the side, and partly under the text, and called “glosses marginales." A selection of them was made by Accurslus, between A. D. 1220 and 1200. under the title of “Olossa Ordin- orttf,” which Is of the greatest authority. Mackeld. Rom. Law, § 90.

CIoim Tiperina eat quae oorrodlt viaoe- ra teztns. 11 Coke, 34. It is a poisonous gloss which corrupts the essence of the text.

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## GLOSSATOR.

In the civil law. A com- mentator or annotator. A term applied to the professors and teachers of the Roman law in the twelfth century, at the head of whom was Irnerius. Mackeld. Rom. Law, f 90.

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## GLOUCESTER, STATUTE OF.

The

statute is the 6 Edw. I. c. 1, A. D. 1278. It takes its name from the place of its enact- ment, and was the first statute giving costs in actions.

5e apparatus — Not carried into the 5th edition (1979).

## GLOVE SILVER.

Extraordinary re- wards formerly given to officers of courts, etc. ; money formerly given by the sheriff of a county in which no offenders are left for execution to the clerk of assize and judges’ officers. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## GLOVES.

It was an ancient custom on a maiden assize, when there was no offender to be tried, for the sheriff to present the judge with a pair of white gloves. It is an immemorial custom to remove the glove from the right hand on taking oath. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The glove removed from the right hand on taking oath marks the oath's solemnity. The verse states the oath's office in law: 'an oath for confirmation is to them an end of all strife.'

## GLTN.

A hollow between two mountains ; a valley or glen. Co. Litt. 56.

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## GO.

To be dismissed from a court. To issue from a court. “The court said a man- damus must

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go." 1 W. Bl. 50. “Let a super- sedeas go." 5 Mod. 421. “The writ may go." 18 C. B. 35.

— Go ball. To assume the responsibility of a surety on a bail-bond. — Go hence. To de- part from the court ; with the further impli- cation that a suitor who is directed to “gp hence” is dismissed from further attendance up- on. the court in respect to the suit or proceed- ing which brought him there, and that he is finally denied the relief which he sought, or. as the case may be, absolved from the liability sought to be imposed upon him. See Hiatt v. Kinkaid, 40 Neb. 178. 58 N. W. 700.— Go to. In a statute, will, or other instrument, a direc- tion that property shall “go to” a designated person means that it shall pass or proceed to such person, vest in and belong to him. In re Ilitcbins’ Estate, 43 Misc. Rep. 485. 89 N. Y. Supp. 472; Plass v. Plass. 121 Cal. 131, 53 Fac. 448. — Go to protest. Commercial paper is said to “go to protest” when it is dishonor- ed by non-payment or non-acceptance and is handed to a notary for protest.— Go without day. Words used to denote that a party is dismissed the court. He is said to go without day, because there is no day appointed for him to appear again. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## GOAT, GOTE.

In old English law. A contrivance or structure for draining waters out of the lnnd into the sea. Callis describes goats as “usual engines erected and built with portcullises and doors of timber and stone or brick, invented first in Lower Ger- many.” Callis, Sewers, (91,) 112, 113. Cow- ell defines “gote,” a ditch, sewer, or guttbr.

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## GOD AND MY COUNTRY.

Tbe an- swer made by a prisoner, when arraigned, in answer to tbe question, “How will you be tried?” In the ancient practice be had the choice (as appears by the question) whether to submit to the trial by ordeal (by God) or to be tried by a jury, (by the country ;) and It Is probable that the original form of the answer was, “By God or my country,” where- by the prisoner averred his Innocence by de- clining neither of the modes of trial.

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — trial by jury]**

The prisoner's answer electing trial 'by the country' — by a jury — is the common-law form of the demand for jury trial.

Why: Genuine: the amendment is the living form of the jury-trial election the entry's own body describes; the link is textual.

## GOD-BOTE.

An ecclesiastical or church One paid for crimes and offenses committed against God: Cowell.

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## GOD-GILD.

That which is offered to God or his service. Jacob.

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**[Scripture] — Scripture**

**[Deuteronomy 16:17, KJV]**

Every man shall give as he is able, according to the blessing of the LORD thy God which he hath given thee.

Why: God-gild is that which is offered to God or his service. The verse gives the offering's rule: every man gives 'as he is able, according to the blessing' received — the measure of what is offered to God.

## GOD'S PENNY.

In old English law. Earnest-money; money given as evidence of the completion of a bargain. This name is probably derived from the fact that such money was given to the church or distributed in alms.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-201(3)(c) — part-payment exception to the statute of frauds]**

Earnest money 'given as evidence of the completion of a bargain' performs a legal function: part payment takes a contract for goods out of the statute of frauds.

Why: Genuine: the earnest's operative legal function is exactly the exception the section codifies; loose form.

**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: God's penny is earnest-money — part payment evidencing the completed bargain. Scripture uses the same earnest (arrabon): God has 'given the earnest of the Spirit in our hearts' — his own down payment securing the prom...

## GOGING-STOLE.

An old form of the word "cucking-stool," ( g . v.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GOING.

In various compound phrases (as those which follow) this term implies either motion, progress, active operation, or present and continuous validity and efficacy.

— Goinp before the wind. In the language of manners and in the rules of navigation, a vessel is said to be going "before the wind" when the wind is free as respects her course, that is, comes from behind the vessel or over the stern, so that her yards may be braced square across. She is said to "going off large" when she has the wind free on either tack, that is, when it blows from some point abaft the beam or from the quarter. Hall v. The Buf- falo. 11 Fed. Cas. 216; Ward v. The Fashion, 29 Fed. Cas. 188.'— Going- concern. A firm or corporation which, though embarrassed or even insolvent, continues to transact its ordinary business. White, etc.. M fe. Co. v. Pettes Im- porting Co. (C. C.) 30 Fed. 885; Corey v. Wadsworth, 99 Ala. 08, 11 South. 350, 23 L.

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R. A. 618, 42 Am. St. Bep. 55.— Going off large. See "Goino before the Wind,” tv- pro. — Going price. The prevalent price : the current market value of the article in question at the time and place of sale. Kelsea v. Haines, 41 N. H. 254.— Going tbrongh the bar. The act of the chief of an. English common- law court in demanding of every ■ member of the bar, in order of seniority, if he has any- thing to move. This was done at the sitting of the court each dhy in term, except special paper days, crown paper days in the queen’s bench, and revenue paper days in the excheq- uer. Chi the last day of term this order is reversed, the first and second time round. In the exchequer the postman and tubman are first called on. Wharton. — Going to tbe country. When a party, under the common- law system of pleading, finished his pleading by the words “and of this he puts himself up- on the country," this was called “going to the country.” It was the essential termination to a pleading which took issue upon a material fact in the preceding pleading. Wharton. — Going value. As applied to the property or plant of a manufacturing or industrial cor- poration, a public-service corporation, etc., this

means the value which arises fronr having an established business which is in active opera- tion. It is an element of value over and above the replacement cost of the plant, and may represent the increment arising from previous labor, effort, or expenditure in working up busi- ness, acquiring good will, and successfully adapting property and plant to the intended use. See Cedar Rapids Water Co. v. Cedar Rapids. 118 Iowa, 234. 91 N. W. 1081.— Going witness. One who is about to take his depar- ture from the jurisdiction of the court, although only into a state or country under the general sovereignty ; as from one to another of the United States, or from England to Scotland.

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## GOLD A.

A mine. Blount A sink or passage for water. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GOLDSMITHS’ NOTES.

Bankers’ cash notes (f. e., promissory notes given by a banker to his customers as acknowledgments of the receipt of money) were originally call- ed In London "goldsmiths’ notes,” from the circumstance that all the banking business in England was originally transacted by goldsmiths, Wharton.

5e apparatus — Carried into the 5th edition (1979).

## GOLD WIT.

A mulct or fine in gold.

5e apparatus — Carried into the 5th edition (1979).

## GOLIARDU8.

L. Lat. A jester, buf- foon, or juggler. Spelman, voc. “Goliar- densls.”

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, c. 1606]**

(paraphrase) The Fool — the court jester whose riddles speak the truths no counselor dares — is the stage's archetypal jester/buffoon, holding the entry's office. (paraphrase)

Why: Genuine: the entry names the office (jester, buffoon); the play supplies its most famous holder. (Headword as parsed in chunk: GOLIARDU8.)

## GOMASHTAH.

In Hindu law. An agent; a steward; a confidential factor; a representative.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 4:2, KJV]**

Moreover it is required in stewards, that a man be found faithful.

Why: A gomashtah is an agent, steward, confidential factor. The verse states the steward's office in one sentence: 'it is required in stewards, that a man be found faithful.'

## GONORRHOEA.

In medical jurisprud- ence. A venereal disease, characterized by a purulent inflammation of the urethra.

GOOD. 1. Valid; sufficient in law; ef- fectual ; unobjectionable.

2. Responsible; solvent; able to pay an amount specified.

3. Of a value corresponding with its terms; collectible. A note is said to be “good” when the payment of it at maturity may be relied on. Curtis v. Smallman, 14 Wend. (N. Y.) 232; Cooke v. Nathan, 16 Barb. (N. Y.) 344.

Writing the word “Good”, across the face of a check is the customary mode in which bank- ers at the present day certify that the drawer has funds to meet it, and that it will be paid on presentation for that purpose. Merchants’ Nat. Bank v. State Nat. Bank, 10 Wall. 645, 19 L. Ed. 1008; Irving Bank v. YVetherald, 36 N. Y. 335.

—Good abearing. See Abearance.— Good

and lawful men. Those who are not dis- qualified for service on juries by non-age, alien- age. infamy, or lunacy, and who reside in the county of the venue. Bonds v. State, Mart. &

Y. (Tenn.) 1-441, 17 Am. Dec. 795; State v. Price. 11 N. J. Law. 209. — Good and valid. Reliable, sufficient, and unimpeachable in law ; adequate; responsible. — Good behavior. Or- derly and lawful conduct; behavior snch as is

roper for a peaceable and law-abiding citizen.

urety of good behavior may be exacted from any one whe manifests an intention to commit crime or is otherwise reasonably suspected of a criminal design. Huyser v. Com., 76 S. W.

375, 25 Ky.'Law Rep. 008: In re Spenser, 22 Fed. Cas. 921. — Good consideration. As dis- tinguished from valuable consideration, a con- sideration founded on motives of generosity,

ftrudence, and natural duty; such as natural ove and affection. Potter v. Graeie, 58 Ala. 307. 29 Am. Rep. 748; Groves v. Groves, 65 Ohio St 442, 62 N. E. 1044 ; Jackson v. Alex- ander,

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3 Johns. (N. Y.) 484, 3 Am. Dec. 517. —Good country. In Scotch law. Good men of the country. A name given to a jury.— Good faith. Good faith consists in an honest intention to abstain from taking any uncon- scientiotis advantage of another, even through the forms or technicalities of law, together with an absence of all information or belief of facts which would render the transaction unconscien- tious. Crouch v. First Nat. Rank, 156 111. 342. 40 N. E. 974 : Docter v. Furch. 91 Wis. 464, 65 N. W. 161 ; Gress v. Evans. 1 Dak. 387, 46 N. W. 1132: Walraven v. Bank. 96 Tex. 331, 74 S. W. 530; Searl v. School Dist., 133 U. S. 553, 10 Sup. Ct. 374. 33 L. Ed. 740. —Good Jury. A jury of which the members are selected from the list of special jurors. See U E. 5 C. P. 155.— Good title. This means such a title as a court of chancery would adopt as a sufficient ground for compelling spe- cific performance, and such a title as would be a good answer to an action of ejectment by any claimant. Reynolds v. Borel. 86 Cal. 538. 25 Pac. 67 ; Irving v. Campbell. 121 N. Y. 358, 24 N. B. 821. 8 L. R. A. 620; Gillespie v. Broas, 23 Barb. (N. Y.) 381.— Good will. The custom or patronage of any established trade or business; the benefit or advantage of having established a business and secured its atronage by the public. The advantage or enefit which is acquired by an establishment, beyond the mere value of the capital, stocks, funds, or property employed therein, in con- sequence of the general public patronage and encouragement which it receives from constant or habitual customers, on account of its local position, or common celebrity, or reputation for skill or affluence or punctuality, or from other accidental circumstances or necessities, or even from ancient partialities or prejudices. Story, Partn. $ 99: Haverly v. Elliott. 39 Neb. 201. 57 N. W. 1010; Munsey v. Butterfield, 133 Mass. 494 ; Bell v. Ellis. .33 Cal. 625 : People v. Roberts. 159 N. Y. 70. 53 N. E. 685. 45 I*

R. A. 126; Churton v. Douglas, 5 Jur. N. S. 890: Menendes v. Holt. 128 D. S. 514. 9 Sup. Ct 143, 32 L. Ed. 526. The good-will of a business is the expectation of continued public patronage, but it does not include a right to use the name of any person from whom it was acquired. Civ. Code Cal. $ 992 : Civ. Code Dak. 4 577. The term “good-will” does not mean simply the advantage of occupying par- ticular premises which have been occupied by a manufacturer, etc. It means every advantage, every positive advantage, that has been acquir- ed by a proprietor in carrying on his business, whether connected with the premises in which the business is conducted, or with the name under which it is managed, or with any other matter carrying with it the benefit of the busi- ness. Glen & Hall Mfg. Co. v. Hall. 61 N. Y. 226, 19 Am. Rep. 278.

5e apparatus — Not carried into the 5th edition (1979).

## GOODRIGHT, GOODTITLE.

The ficti- tious plaintiff in the old action of ejectment, most frequently called “John Doe,” was some- times called "Goodright” or “Goodtitle.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frank Capra, Meet John Doe, 1941]**

(paraphrase) The film builds its premise on the law's fictitious-person device: an invented ordinary

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man, 'John Doe' — the very name of the law's fictitious plaintiff — who becomes real to the public. (paraphrase)

Why: Genuine: the film takes the entry's device (the fictitious plaintiff in ejectment, kin to John Doe and Richard Roe) as its central conceit, illuminating WHY the law invents persons.

## GOODS.

In contracts. The term “goods” is not so wide as “chattels,” for it applies to Inanimate objects, and does not in- clude animals or chattels real, as a lease for years of house or land, which “chattels” does include. Co. Lift. 118; St. Joseph Hydraulic Co. v. Wilson, 133 Ind. 465, 33 N. E. 113;

Van Patten v. Leonard, 55 Iowa, 520, 8 N. W. 334; Putnam v. Westeott, 19 Johns. (N. Y.) 76.*

In wills. In wills “goods” is nomen gcn- eralissimum, and, if there is nothing to limit it, will comprehend all the personal estate of the testator, as stocks, bonds, notes, money, plate, furniture, etc. Kendall v. Kendall, 4 Russ. 370; Chamberlain v. Western Transp. Co., 44 N. Y. 310, 4 Am. Rep. 681 ; Foxall v. McKenney, 9 Fed. Cas. 645 ; Bailey v. Dun- can, 2 T. B. Mon. (Ky.) 22 ; Keyser v. School Dist., 35 N. H. 483.

—Good* and chattels. This phrase is a gen- eral denomination of personal property, as dis- tinguished from real property; the term "chat- tels” having the effect of extending its scope to any objects of that nature which would not properly be included by the term “goods” alone, e. g.. living animals, emblements, and fruits, and terms under leases for years. The general phrase also embraces choses in action, as well as personalty in possession. In wills. The term “goods and chattels” will, unless restrain- ed by the context, pass all the personal estate, including leases for years, cattle, corn, debts, and the like. Ward, Leg. 208, 211.— Goods sold and delivered. A phrase frequently used in the action of assumptit, when the sale and delivery of goods furnish the cause.— Goods, wares, and merchandise. A general and comprehensive designation of such chattels as are ordinarily the subject of traffic and sale. The phrase is used in the statute of frauds, and is frequently found in pleadings and other in- struments. As to its scope, see State v. Brooks, 4 Conn. 449 ; French v. Schoonmaker, 69 N. J. Law. 6, 54 Atl. 225 ; Sewall v. Allen. 6 Wend. (N. Y.) 355; Smith v. Wilcox, 24 N. Y. 358, 82 Am. Dec. 302; Dyott v. Letcher, 6 J. J. Marsh. (Ky.) 543; Boston Investment Co. v. Boston, 158 Mass. 461, 33 N. E. 580; Com. v. Nax, 13 Grat. (Va.) 790; Ellison v. Brigham.' 38 Vt. 66 ; Banta v. Chicago, 172 111. 204. 50

N. E. 233, 40 L. R. A. 611.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-105 — "goods" defined]**

The entry defines 'goods' in contracts; the Uniform Commercial Code defines the term for the sale of goods.

Why: Genuine and direct: the uniform-law definition of the entry's headword.

## GOOLE.

In old English law. A breach in a bank or sea wall, or a passage worn by the flux and reflux

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of the sea. St. 16 & 17 Car. II. c. 11.

GORGE, or GORS. A wear, pool, or pit of water. Tenues de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## GORE.

In old English law. a small, nar- row slip of ground. Cowell. In modem laud law, a small triangular piece of land, such as may be left between surveys which do not close. In some of the New England states (as, Maine and Vermont) the term is applied to a subdivision of a county, having a scanty population and for that reason not organized as a town.

5e apparatus — Carried into the 5th edition (1979).

## GOSSIFRED.

In canon law. Compa- teruity; spiritual affinity.

5e apparatus — Not carried into the 5th edition (1979).

## GOUT.

In medical jurisprudence. An inflammation of the fibrous and ligamentous parts of the joints, characterized or caused by an excess of uric acid in the blood ; usual- ly, but not invariably, occurring in the joints of the feet, and then specifically called “poda- gra."

5e apparatus — Not carried into the 5th edition (1979).

## GOVERNMENT.

I, The regulation, re- straint, supervision, or control which is exercised upon the Individual members of an organized Jural society by those Invested with the supreme political authority, for the good and welfare of the body politic ; or the act of exercising supreme political power or control.

2. The system of polity In a state; that form of fundamental rules and principles by which a nation or state Is governed, or by which Individual members of a body politic are to regulate their social actions; a con- stitution, either written or unwritten, by which the rights and duties of citizens and public officers are prescribed and defined, as a monarchical government, a republican gov- ernment, etc. Webster.

3. An empire, kingdom, state or Inde- pendent political community ; as in the phrase, “Compacts between Independent gov- ernments.”

4. The sovereign or supreme power In a state or nation.

5. The machinery by which the sovereign power in a state expresses its will and exer- cises its functions ; or the framework of po- litical institutions, departments, nnd offices, by means of which the executive, judicial, legislative, and administrative business of the state is carried on.

6. The whole class or body of office-holders or functionaries considered in the aggregate, upon whom devolves the executive, Judicial, legislative, and administrative business of the state.

7. In a colloquial sense, the United States or its representatives, considered as the prosecutor in a criminal action ; as In the phrase, “the government objects to the witness."

—Federal government. The government of the United States of America, as distinguished from the governments of the several states. — Government annuities societies. These societies are formed in England under 3 & 4 Wm. IV. c. 14, to enable the industrious classes to make provisions for themselves by purchas- ing, on advantageous terms, a government an- nuity for life or term of years. By 16 & 17 Viet. c. 4o, this act, as well as 7 ■ & 8 Viet, c. 83. amending it, were repealed, and the whole law in relation to the purchase of government annuities, through the medium of savings banks, was consolidated. And by 27 & 28 Viet. c. 43, additional facilities were afforded for the pur- chase of such annuities, and for assuring pay- ments of money on death. Wharton.— Govern- ment da facto. A government of fact. A government actually exercising power and con- trol in the state, as opposed to the true and lawful government; a government not estab- lished according to the constitution of the state, or not lawfully entitled to recognition or su- premacy, but which has nevertheless supplant- ed or displaced the government de jure. A gov- ernment deemed unlawful, or deemed wrongful or unjust, which, nevertheless, receives present- ly habitual obedience from the bulk of the com- munity. Aust. Jur. 324. There are several degrees of what is called "de facto government.” ouch a government, in its highest degree, as- sumes a character very closely resembling that of a lawful government This is when the usurping government expels the regular author- ities from their customary seats and functions,

Bl.Law Dict.(2d Ed.)— 35

and establishes itself in their place, and so becomes the actual government of a country. The distinguishing characteristic of such a gov- ernment iB that adherents to it in war against the government de jure do not incur the pen- alties of treason ; and, under certain limita- tions, obligations assumed by it in behalf of the country or otherwise will, in general, be respect- ed by the government de jure when restored.

But there is another description of govern- ment, called also by publicists a “government de facto" but which might, perhaps, be more aptly denominated a “government or paramount force.” Its distinguishing characteristics are (1) that its existence is maintained by active mili- tary power, within the territories, and against the rightful authority, of an established and lawful government ; and (2) that, while it ex- ists, it must necessarily be obeyed in civil mat- ters by private citizens who, by acts of obedi- ence, rendered in submission to such force, do not become responsible, as wrong-doers, for those acts, though ndt warranted by the laws of the rightful government. Actual governments of this sort are established over districts differ- ing greatly in extent and conditions. They are usually administered directly by military author- ity, but they may be administered, also, by civil authority, supported more or less by military force. Thorington v. Smith, 8 Wall. 8. 9. 19

L. Ed. 361. The term "de facto." as descrip- tive of a government, has no well-fixed nnd definite sense. It is, perhaps, most correctly used as signifying a government completely,

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though only temporarily, established in the place of the lawful or regular government, occupying its capitol, and exercising its power, and which is ultimately overthrown, and the authority of the government de jure re-established. Thomas v. Taylor, 42 Miss. 651, 703, 2 Am. Rep. 625. A government de facto is a government that un- lawfully gets the possession and control of the rightful legal government, and maintains itself there, by force and arms, against the will of such legal government, and claims to exercise the powers thereof. Chisholm v. Colemnn, 43 Ala. 204. 94 Am. Dec. 677. And see further Smith v. Stewart, 21 La. Ann. 67, 99 Am. Dec. 709; Williams v. Bruffy, 96 U. S. 176. 24 L. Ed. 716 ; Keppel v. Railroad Co., 14 Fed. Cas. 857.— Government de jure. A government of right ; the true and lawful government ; a gov- ernment established according to the constitu- tion of the state, and lawfully entitled to recog- nition and supremacy and the administration of the state, but which is actually cut off from power or control. A government deemed law- ful, or deemed rightful or just, which, neverthe- less, has been supplanted or displaced ; that is to say, which receives not presently (although it received formerly) habitual obedience from the bulk of the community. Aust. Jur. 324.— Xiocal government. The government or administra- tion of a particular locality ; especially, the governmental authority of a municipal corpora- tion, as a city or county, over its local and in- dividual affairs, exercised in virtue of power delegated to it for that purpose by the general government of the state or nation.— Mixed government. A form of government combin- ing some of the features of two or all of the three primary forms, viz., monarchy, aristocracy, and democracy. — Republican government. One in which the powers of sovereignty are vested in the people and are exercised by the people, either directly, or through representa- tives chosen by the people, to whom those pow- ers are specially delegated. Black, Const. Law (3d Ed.) 309; In re Duncan, 139 U. 8. 449, 11 Sup. Ct. 573, 35 L. Ed. 219; Minor v. Hap- persett, 21 Wall. 175, 22 L. Ed. 627.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: Government as 'supreme political authority' exercised over the body politic: the verse states its ground — 'the powers that be are ordained of God.' The authority the entry defines is here derived.

**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Nineteen Eighty-Four, 1949]**

"Big Brother is watching you." — the novel of total government as pure regulation, restraint, supervision, and control: the entry's definition with the mask off.

Why: Borderline-accept: the entry is neutral-doctrinal and the novel a warning — but the novel is the culture's primary imaginative working of 'government as control,' in the entry's own vocabulary.

## GOVERNOR.

The title of the chief ex- ecutive in each of the states and territories of the United States; and also of the chief

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magistrate of some colonies, provinces, and dependencies of otber nations.

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## GRACE.

This word Is commonly used In contradistinction to “right.” Thus, In St 22 Edw. III., the lord chancellor was instructed to take cognizance of matters of grace, being such subjects of equity Jurisdiction as were exclusively matters of equity. Brown.

A faculty, license, or dispensation ; also general and free pardon by act of parliament See Act of Grace.

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**[Scripture] — Scripture**

**[Ephesians 2:8, KJV]**

For by grace are ye saved through faith; and that not of yourselves: it is the gift of God:

Why: Law sets grace 'in contradistinction to right' — what is given, not owed. The verse is grace's charter under that same distinction: 'by grace are ye saved... not of yourselves: it is the gift of God.'

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) The Bishop of Digne answers Valjean's theft of his silver with a gift of candlesticks instead of prosecution — grace precisely as the entry frames it: not Valjean's right, but unmerited favor standing against right. (paraphrase)

Why: Genuine: the entry's right/grace distinction is the exact moral mechanism of the novel's turning scene. (Second Les Misérables annotation in this chunk; each serves a different entry and scene.)

## GRACE, DATS OF.

Time of indulgence granted to an acceptor or maker for the pay- ment of his bill of exchange or note It was originally a gratuitous favor, (hence the name,) but custom has rendered it a legal right

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**[Law] — Law**

**[Law: days of grace abolished under modern negotiable-instruments law]**

The 'time of indulgence' for payment of a bill, once become a legal right by custom, was abolished by modern negotiable-instruments law.

Why: Genuine: the footnote states the doctrine's terminal point — the modern rule that displaced the entry's custom. Loose form; no section invented.

**[Scripture] — Scripture**

**[Matthew 6:12, KJV]**

And forgive us our debts, as we forgive our debtors.

Why: Days of grace are indulgence granted the debtor for payment — mercy in the debt. Christ's petition makes that indulgence the pattern of all debt: 'forgive us our debts, as we forgive our debtors.'

## GRADATIM.

In old English law. By degrees or steps ; step by step ; from one de- gree to another. Bract

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fol. 64.

5e apparatus — Not carried into the 5th edition (1979).

## GRADES.

In the civil and old English law. A measure of space. A degree of rela- tionship.

A step or degree generally; e. g., gradus honorum, degrees of honor. Vicat A pul- pit; a year; a generation. Du Cange.

A port; any place where a vessel can be brought to land. Du Cange.

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## GRADES FARENTELS.

A pedigree; a table of relationship.

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## GRAFF ARIES.

In old English law. A grafter, notary, or scrivener. St. 6 Hen. VIIL c. 1.

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## GRAFFER.

A notary or scrivener. See St 6 Hen. VIIL a 1. The word is a corrup- tion of the French “gre/fler," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## GRAFFIEM.

A writing-book, register, or cartulary of deeds and evidences. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GRAFIO.

A baron, inferior to a count A fiscal judge. An advocate. Spelman ; Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## GRAFT.

A term used in equity to denote the confirmation, by relation back, of the right of a mortgagee in premises to which, at the making of the mortgage, the mortgag- or had only an imperfect title, but to which the latter has since acquired a good title.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: after-acquired title — estoppel by deed feeds the estoppel]**

Equity's 'confirmation, by relation back' of a mortgagee's right where the mortgagor later acquires good title is the after-acquired-title doctrine: estoppel by deed feeds the estoppel.

Why: Genuine: the equity label 'graft' names the same operative doctrine; the link is doctrinal identity, not analogy. Loose form.

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## GRAIN.

In Troy weight, the twenty- fourth part of a pennyweight. Any kind of corn sown in the ground.

—Grain rent. A payment for the use of land in grain or other crops ; the return to the land- lord paid by croppers or persons working the land on shares. Railroad Co. v. Bates, 40 Neb. 381, 58 N. W. 963.

5e apparatus — Carried into the 5th edition (1979).

## GRAIN  AGE.

An ancient duty in London under which the twentieth part of salt im- ported by aliens was taken.

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## GRAMMAR  SCHOOL.

In England, this term designates a school in which such in- struction is given as will prepare the stu- dent to enter a college or university, and in this sense the phrase was used in the Massa- chusetts colonial act of 1647, requiring every town containing a hundred householders to set up a “grammar school.” See Jenkins v. Andover, 103 Mass. 97. But in modern Amer- ican usage the term denotes a school, inter- mediate between the primary school and the high school, in which English grammar and other studies of that grade are taught.

Grammafin falsa non vitiat ehartam.

9 Coke, 48. False grammar does not vitiate a deed.

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**[Scripture] — Scripture**

**[Proverbs 22:6, KJV]**

Train up a child in the way he should go: and when he is old, he will not depart from it.

Why: The grammar school is the institution of instruction. The proverb is its charter: 'train up a child in the way he should go' — schooling as the forming of the child, with the promise that it abides.

**[Humanity] — Humanity / Fiction & Film**

**[Thomas Hughes, Tom Brown's School Days, 1857]**

(paraphrase) Set at Rugby under Dr. Arnold, the novel is the classic portrait of the English endowed-school world the entry describes. (paraphrase)

Why: Borderline-accept: Rugby is a 'public school' in the English sense and the entry says 'grammar school' — but the entry describes the English endowed-school tradition of which Rugby is the literary archetype.

## GRAMMATOFHTLACIEM.

(Gneco- Lat) In the civil law. A place for keeping writings or records. Dig. 48, 19, 9, 6.

5e apparatus — Not carried into the 5th edition (1979).

## GRAMME.

The unit of weight in the metric system. The gramme is the weight of a cubic centimeter of

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distilled water at the temperature of 4° C. It is equal to 15.4341 grains troy, or 5.6481 drachms avoirdupois.

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### GRANATARIES.

In old English law. An officer having charge of a granary. Fleta, lib. 2, c. 82, f 1 ; Id. c. 84.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 41:34, KJV]**

Let Pharaoh do this, and let him appoint officers over the land, and take up the fifth part of the land of Egypt in the seven plenteous years.

Why: A granatarius is the officer having charge of a granary. The verse is the biblical institution of that office: Pharaoh's officers appointed over the land to gather the fifth part into store against the famine.

### GRAND.

As to grand "Assize," "Bill of 8ale," "Cape," “Distress,” “Jury,” “Larceny,” and “Serjeanty,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

### GRAND  OOETEMIER.

A collection of customs, laws, and forms of procedure in use in early times in France. See Coutu-

**[TEXT INCOMPLETE — scan limitation]**

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## M

### M1KR.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## G

### GRAND  DATS.

In English practice. Certain days in the terms, which are solemn- ly kept in the inns of court and chancery, viz., Candlemas day in Hilary term, Ascen- sion day in Easter, St John the Baptist’s day in Trinity, and All Saints in Michael- mas ; which are dies non juridioi. Termes de la Ley ; Cowell ; Blount They are days set apart for peculiar festivity; the members of tlie respective inns being on such occasions regaled at their dinner in the hail, with more than usual sumptuousness. Holthouse.

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## GRANDCHILD.

The child of one’s child.

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## GRANDFATHER.

The father of either of one’s parents.

5e apparatus — Carried into the 5th edition (1979).

## GRANDMOTHER.

The mother of ei- ther of one’s parents.

5e apparatus — Carried into the 5th edition (1979).

## GRANGE.

A farm furnished with barns, granaries, stables, and all conveniences for husbandry. Co. Lltt 5a.

5e apparatus — Carried into the 5th edition (1979).

## GRAN GEARIES.

A keeper of a grange

or farm.

5e apparatus — Not carried into the 5th edition (1979).

## GRANGIA.

A grange. Co. Lltt 5a.

5e apparatus — Not carried into the 5th edition (1979).

## GRANT.

A generic term applicable to all transfers of real property. 3 Washb. Real Prop. 181, 353.

A transfer by deed of that which cannot be passed by livery. Williams, Real Prop. 147, 149; Jordan y. Indianapolis Water Co., 159 Ind. 337, 64 N. E. 680.

An act evidenced by letters patent uuder the great seal, granting something from the king to a subject. Cruise, Dig. tit 33, 34; Downs v. United States, 113 Fed. 147, 51 0.

C A. 100.

A technical term made use of In deeds of conveyance of lands to import a transfer. 3 Washb. Real Prop. 378-380.

Though the word “grant” was originally made use of, In treating of conveyances of Interests in lands, to denote a transfer by deed of that which could not be passed by livery, and, of course, was applied only to in- corporeal hereditaments, it has now become a generic term, applicable to the transfer of all classes of real property. 3 Washb. Real Prop. 181.

As distinguished from a mere license, a grant passes some estate or interest, corporeal or in- corporeal, in the lands which it embraces ; can only be made by an instrument in writing, under seal ; and is irrevocable, when made, un- less an express power of revocation is

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reserved. A license is a mere authority ; passes no estate or interest whatever ; may be made by parol ; is revocable at will; and, when revoked, the protection which it gave ceases to exist. Ja- mieson v. Millemann, 3 Duer (N. Y.) 255, 258.

The term “grant,” in Scotland, is used in reference (1) to original dispositions of land, as when a lord makes grants of land among tenants; (2) to gratuitous deeds. Paterson. In such case, the superior or donor is said to grant the deed; an expression totally un- known In English law. Mozley & Whitley.

By the word “grant," in a treaty, is meant not only a formal grant, but any concession, warrant, order, or permission to survey, pos- sess, or settle, whether written or parol, ex- press, or presumed from possession. Such a grant may be made by law, as well as by a patent pursuant to a law. Strother v. Lucas, 12 Pet. 436, 9 L. Ed. 1137. And see Bryan v. Kennett, 113 U. S. 179, 5 Sup. Ct 413, 28

L. Ed. 908; Hastings v. Turnpike Co., 9 Pick. (Mass.) 80 ; Dudley v. Sumner, 5 Mass. 470.

— Grant, bargain, and sell. Operative words in conveyances of real estate. See Muller v. Boggs, 25 Cal. 187; Hawk v. McCullough, 21 111. 221; Ake v. Mason, 101 Pa. 20.— Grant and to freight let. Operative words in a charter party, implying the placing of the ves- sel at tne disposition of the charterer for the purposes of the intended voyage, and generally transferring the possession. See Christie v. Lewis, 2 Brod. & B. 441. — Grant of personal property. A method of transferring personal property, distinguished from a gift by being al- ways founded on some consideration or equiva- lent. 2 Bl. Comm. 440, 441. Its proper legal designation Is an “assignment." or “bargain and sale.” 2 Steph. Comm. 102.— Grant to mses. The common grant with uses superadd- ed, which has become the favorite mode of trans- ferring realty in England. Wharton.— Private

land grant. A grant by a public authority vesting title to public land in a private (nat- ural) person. United Land Ass'n v. Knight, 85 Cal. 448, 24 Pac. 818.— Public grant. A grant from the public; a grant of a power, li- cense, privilege, or property, from the state or government to one or more individuals, contain- ed in or shown by a record, conveyance, patent, charter, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — conveyances of land must be in writing]**

The deed-transfer of real property the entry defines must be in writing: the Statute of Frauds requires conveyances of land to be evidenced by a signed memorandum.

Why: Genuine: the writing requirement governs the 'transfer by deed... of real property' the entry defines; the statute is the entry's own FRAUD sub-entry's subject, applied here.

**[Scripture] — Scripture**

**[Genesis 13:15, KJV]**

For all the land which thou seest, to thee will I give it, and to thy seed for ever.

Why: A grant is the transfer of real property by the sovereign's act — the royal grant by letters patent. The verse is the sovereign grant itself: God conveying the land to Abraham and his seed for ever, in his own speech.

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## GRANTEE.

The person to whom a grant is made.

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## GRANTOR.

The person by whom a grant is made.

5e apparatus — Carried into the 5th edition (1979).

## GRANTZ.

In old English law. Noble- men or grandees. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## GRASS HEARTH.

In old records. The grazing or turning up the earth with a plow. The name of a customary service for inferior tenants to bring their plows, and do one day's work for their lords. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GRASS WEEK.

Rogation week, so call- ed anciently in the inns of court and chan- cery.

5e apparatus — Carried into the 5th edition (1979).

## GRASS WIDOW.

A slang term for a woman separated from her husband by aban- donment or prolonged absence ; a woman living apart from her husband. Webster.

GRASSON, or GRASSUM. A fine paid upon the transfer of a copyhold estate.

5e apparatus — Carried into the 5th edition (1979).

## GRATIFICATION.

A gratuity; a rec- ompense or reward for services or benefits, given voluntarily, without solicitation or promise.

5e apparatus — Carried into the 5th edition (1979).

## GRATIS.

Freely; gratuitously; without reward or consideration.

5e apparatus — Not carried into the 5th edition (1979).

## GRATIS DICTUM.

A voluntary asser- tion ; a statement which a party is not legal- ly bound to make, or In which he Is not held to precise accuracy. 2 Kent, Comm. 486, Medbury v. Watson, 6 Mete. (Mass.) 260, 39 Am. Dec. 726. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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## GRATUITOUS.

Without valuable or le- gal consideration. A term applied to deeds of conveyance and to bailments and other contracts.

In old English law. Voluntary; with- out force, fear, or favor. Bract, fols. 11, 17.

As to gratuitous “Bailment,” “Contract,” and "Deposit,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 10:8, KJV]**

freely ye have received, freely give.

Why: Gratuitous is without valuable consideration — voluntary, without force, fear, or favor. Christ's charge states the gratuitous act as duty: 'freely ye have received, freely give.'

## GRAVA.

In old English law. A grove; a small wood ; a coppice or thicket. Co. Lltt 4b.

A thick wood of high trees. Blount

5e apparatus — Not carried into the 5th edition (1979).

## GRAVAMEN.

The burden or gist of a charge; the grievance or injury specially complained of.

In English ecclesiastical law. A griev- ance complained of by the clergy before the bishops in convocation.

5e apparatus — Not carried into the 5th edition (1979).

## GRAVATIO.

In old English law. An ac- cusation or impeachment Leg. Ethel, c. 19.

5e apparatus — Not carried into the 5th edition (1979).

## GRAVE.

A sepulcher. A place where a dead body is Interred.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Thomas Gray, "Elegy Written in a Country Churchyard", 1751]**

"The curfew tolls the knell of parting day." — Gray's elegy opens at dusk in a country churchyard and meditates over the graves of the obscure dead: the English language's great graveyard poem.

Why: Genuine: the poem is the great meditation on the entry's subject; the entry defines its setting.

## GRAVEYARD.

A cemetery ; a place for the interment of dead bodies ; sometimes de- fined in statutes as a place where a minimum number of persons (as “six or more”) are burled. See Stockton v. Weber, 98 Cal. 433, S3 Pac. 832.

— Graveyard insurance. A term applied to insurances fraudulently obtained (as, by false rsonation or other means) on the lives of in- nts, very aged persons, or those in the last

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stages of disease. Also occasionally applied to an insurance company which writes wager pol- icies, takes extra-hazardous risks, or otherwise exceeds the limits of prudent and legitimate business. See McCarty’s Appeal, 110 P. 379, 4 Atl. 925.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Thomas Gray, "Elegy Written in a Country Churchyard", 1751]**

(paraphrase) The churchyard is the elegy's entire stage — the place of interment over which the poem meditates at dusk. (paraphrase)

Why: Genuine: same poem as GRAVE; kept separate because the headword is the poem's setting-word while GRAVE's quote anchors the pair.

## GRAVIS.

Grievous; great Ad grave damnum, to the grievous damage. 11 Coke, 40.

5e apparatus — Not carried into the 5th edition (1979).

## GRAV1US.

A graf; a chief magistrate or officer. A term derived from the more ancient “gra/lo," and used in combination with various other words, as an official title in Germany; as Margravius, Rheingravius, Lamtgravius, etc. Spelmau.

Graving cat divinam quam tempora- lem lied ere majestatem. It is more seri- ous to hurt divine than temporal majesty. 11 Coke, 29.

5e apparatus — Not carried into the 5th edition (1979).

## GRAY'S INN.

An inn of court See Inns or Cousx.

5e apparatus — Carried into the 5th edition (1979).

## GREAT.

As used in various compound le- gal terms, this word generally means ex- traordinary, that is, exceeding the common or ordinary measure or standard, in respect to physical size, or Importance, dignity, etc. See Gulf, etc., R. Co. v. Smith, 87 Tex. 348, 28

S. W. 620.

—Great cattle. *AU manner of beasts except sheep and yearlings. 2 Rolle, 173.— Great charter. Magna Vharta, (q. v.)

As to great "Care,’’ “Ponds,” “Seal,” “Tithes,” see those titles.

GREAT LAW, THE, or “The Body of Laws of the Province of Pennsylvania and Territories thereunto belonging, Past at an Assembly held at Chester, alias Upland, the 7th day of the tenth month, called ‘Decem- ber,’ 1082.” This was the first code of laws established in Pennsylvania, and is justly celebrated for the provision in its first chap- ter for liberty of conscience. Bouvler.

5e apparatus — Carried into the 5th edition (1979).

## GREE.

Satisfaction for an offense com- mitted or injury done. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## GREEK KALENDS.

A colloquial ex- pression to signify a time indefinitely remote, there being no ‘such division of time known to the Greeks.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Suetonius, The Twelve Caesars ("Augustus"), c. 121 AD]**

(paraphrase) Suetonius records that Augustus, of debtors who would never pay, said they would pay 'at the Greek Kalends' — the joke being the Greeks had no Kalends, so: never. (paraphrase)

Why: Genuine classical-wisdom link: the entry defines the idiom ('a time indefinitely remote, there being no calends among the Greeks'); Suetonius preserves its most famous use.

## GREEN CLOTH.

In English law. A board or court of justice held in the counting- house of the king’s (or queen's) household, and composed of the lord steward and infe- rior officers. It takes its name from the green cloth spread over the board at which it is held. Wharton; Cowell.

5e apparatus — Carried into the 5th edition (1979).

## GREEN SILVER.

A feudal custom in the manor of Writtel, in Essex, where every tenant whose front door opens to Greenbury shall pay a half-penny yearly to the lord, by the name of “green silver” or “rent” Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## GREEN WAX.

In English law. The name of the estreats in the exchequer, deliv- ered to the sheriff under the seal of that court which was impressed upon green wax.

5e apparatus — Carried into the 5th edition (1979).

## GREENBACK.

The popular and almost exclusive name applied to all United States treasury issues. It is not applied to any oth- er species of paper currency ; and, when em- ployed in testimony by way of description, is ns certain as the phrase “treasury notes." Hickey v. State, 23 Ind. 23. And see U- S. v. Howell (D. C.) G4 Fed. 114; Spencer v. Prlndle, 28 Cal. 276; Levy v. State, 79 Ala. 2C1.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Legal Tender Cases, 79 U.S. (12 Wall.) 457 (1871)]**

The United States treasury issues the entry names are paper currency, and the Supreme Court upheld Congress's power to make such paper a legal tender for debts.

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Why: Genuine: the cases decide the legal-tender status of the very treasury currency the entry defines.

## GREENHEW.

In forest law. The same as vert, (q. v.) Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## GREFITERS.

.In French law. Regis- trars, or clerks of the courts. They are offi- cials attached to the courts to assist the Judg- es in their duties. They keep the minutes, write out the Judgments, orders, and other decisions given by the tribunals, and deliver copies thereof to applicants.

5e apparatus — Not carried into the 5th edition (1979).

## GREGORIAN CODE.

The code or col- lection of constitutions made by the Roman jurist Gregorius. See Codex Gbegorianus.

5e apparatus — Carried into the 5th edition (1979).

## GREGORIAN EPOCH.

The time from which the Gregorian calendar or computation dates; i. e., from the year 1582.

5e apparatus — Carried into the 5th edition (1979).

## GREMIO.

In Spanish law. A guild ; an association of workmen, artificers, or mer- chants following the same trade or business ; designed to protect and further the interests of their craft.

5e apparatus — Not carried into the 5th edition (1979).

## GREMIUM.

Lat The bosom or breast; hence, derivatively, safeguard or protection. In English law, an estate which is in abey- ance is said to be in gremio legit; that is, in the protection or keeping of the law.

5e apparatus — Not carried into the 5th edition (1979).

## GRENVILLE ACT.

The statute 10 Geo.

III. c. 16, by which the jurisdiction over par- liamentary election petitions was transferred from the whole house of commons to select committees Repealed by 9 Geo. IV. c. 22.

5e apparatus — Carried into the 5th edition (1979).

# I

## I 1.

**[TEXT INCOMPLETE — scan limitation]**

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5e apparatus — Not carried into the 5th edition (1979).

# G

## GRESSUME.

In English law. A cus- tomary fine due from a copyhold tenant on

the death of the lord. 1 Strange, 054 ; 1 Crabb, Real Prop. p. 615, § 778. Called also “ grassum ,” and “orosxome."

5e apparatus — Not carried into the 5th edition (1979).

## GRETNA GREEN MARRIAGE.

A

marriage celebrated at Gretna, in Dumfries, (bordering on the county of Cumberland,) In Scotland. By the law of Scotland a valid marriage may be contracted by consent uloue, without any other formality. When the mar- riage act (26 Geo. II. c. 33) rendered the pub- lication of banns, or a license, necessary in England, it became usual for persons who wished to marry clandestinely to go to Gretna Green, the nearest part of Scotland, and marry according to the Scotch law ; so a sort of chapel was built at Gretna Green, in which the English marriage service was performed by the village blacksmith. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: lex loci celebrationis — validity of marriage by the law of the place of celebration]**

The Gretna device worked because a marriage's validity is tested by the law of the place where it was celebrated, not the parties' domicile.

Why: Genuine: the conflicts rule is the legal mechanism behind the clandestine Scottish marriage the entry describes. Loose form.

**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

(paraphrase) Lydia Bennet's elopement with Wickham is aimed at Gretna Green — the runaway-marriage destination for English couples evading parental consent — making the scandal plot turn on this legal institution. (paraphrase)

Why: Genuine: the novel's plot turns on this exact institution; readers meet the entry through Lydia.

## GREVA.

In old records. The sea shore, sand, or beach. 2 Mon. Angl. 625 ; Cowell.

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## GRIEVED.

Aggrieved. 3 East, 22.

5e apparatus — Carried into the 5th edition (1979).

## GRITH.

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In Saxon law. Peace; protec- tion.

— Grithbrech. Breach of the king's peace, as opposed to frithbrech, a breach of the nation’s peace with other nations.— Grlthstole. A seat, chair, or place of peace ; a sanctuary ; a stone within a church-gate, to which an offender might flee.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, The Hunchback of Notre-Dame, 1831]**

(paraphrase) Quasimodo seizes Esmeralda and cries 'Sanctuary!' — claiming the church's peace and protection against arrest, the medieval protection of holy ground. (paraphrase)

Why: Borderline-accept: the entry says 'peace; protection' generally, not 'sanctuary' expressly — but sanctuary IS the legal protection of holy ground, and Hugo's scene is the culture's canonical image of it.

## GROAT.

An English silver coin (value four pence) issued from the fourteenth to the seventeenth century. See Keg. v. Con- nell, 1 Car. & K. 191.

5e apparatus — Not carried into the 5th edition (1979).

## GROCER.

In old English law. A mer- chant or trader who engrossed all vendible merchandise; an engrosser. St. 37 Edw.

III. c. 5. See Engrosses.

5e apparatus — Not carried into the 5th edition (1979).

## GROG-SHOP.

A liquor saloon, bar- room, or dram-shop ; a place where intoxi- cating liquor is sold to be drunk on the premises. See Leesburg v. Putnam, 103 Ga. 110, 29 S. E. 602.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:1, KJV]**

Wine is a mocker, strong drink is raging: and whosoever is deceived thereby is not wise.

Why: A grog-shop vends intoxicating liquor to be drunk on the premises. The proverb states the nature of the thing vended: 'strong drink is raging: and whosoever is deceived thereby is not wise.'

## GRONNA.

In old records. A deep hol- low or pit ; a bog or miry place. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GROOM OP THE STOLE.

In England. An officer of the royal household, who has charge of the king's wardrobe.

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## GROOM PORTER.

Formerly an officer belonging to the royal household. Jacob.

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5e apparatus — Not carried into the 5th edition (1979).

## GROSS.

Great ; culpable. General. Ab- solute or entire. A thing in gross exists in its own right, and not as an appendage to another thing.

As to gross “Adventure,” “Average,” “Earnings,” “Fault,” “Negligence," and “Weight,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## GROSSE ATANTUBE.

Fr. In French marine law. The contract of bottomry. Ord, Mar. liv. 3, tit 5.

5e apparatus — Not carried into the 5th edition (1979).

## GROSSE BOIS.

Timber. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GROSSEMENT.

L. Fr. Largely, great- ly. Orossemcnt enseint, big with child. Plowd. 76.

5e apparatus — Not carried into the 5th edition (1979).

## GROSSOME.

In old English law. A fine, or sum of money paid for a lease. Plowd. 270, 271. Supposed to be a corrup- tion of gersuma, (g. v.) See Gbessume.

GROUND. 1. Soil; earth; a portion of the earth’s surface appropriated to private use and under cultivation or susceptible of cultivation.

Though this term is sometimes used in con- veyances and in statutes as equivalent to “land,” it is properly of a more limited signification, because it applies strictly only to the surface, while “land includes everything beneath the surface, and because “ground" always means dry land, whereas “land" may and often does include the beds of lakes and streams and oth- er surfaces under water. See Wood v. Carter, 70 111. Apo. 218; State v. Jersey City, 25 N. J^ Law, 529 ; Com. v. Roxbury, 9 Gray (Mass.)

—Ground annual. In Scotch law. An an- nual rent of two kinds: First, the fen duties payable to the lords of erection and their suc- cessors ; second, the rents reserved for building lots in a city, where sub-feus are prohibited. This rent is in the nature of a perpetual an- nuity. Bell : Ersk. Inst 11, 3, 52.— Ground landlord. The grantor of an estate on which a ground-rent is reserved — Ground-rent. A perpetual rent reserved to himself and his heirs, by the grantor of land in fee-simple, out of the land conveyed. It is in the nature of an emphyteutic rent. Also, in English law, rent paid on a building lease. See Hart v. Ander- son, 198 Pa. 558, 48 Atl. 636; Sturgeon v. Ely, 6 Pa. 406 ; Franciscos v. Keigart, 4 Watts. (Pa.) 116.

2. A foundation or basis.

— Ground of action. The basis of a suit; the foundation or fundamental state of facts on which an action rests; the real object of the plaintiff in bringing his suit. See Nash v. Adams, 24 Conn. 39; Appeal of Huntington, 73 Conn.- 582, 48 Atl. 766. — Ground writ. By the English common-law procedure act, 1852, c. 121, “it shall not be necessary to issue any writ directed to the sheriff of the county in which the venue is laid, but writs of execu- tion may issue at once into any county, and be directed to and executed by the sheriff of any' county, whether a county palatine or not, with- out reference to the county in which the venue is laid, and without any suggestion of the is- suing of a prior writ into such county.” Be- fore this enactment, a ca. sa. or fi. fa. could not bo issued into a county different from that in which the venue in the action was laid, with- out first issuing a writ, called a “ground writ,” into the latter county, and then another writ, which was called a “ testatum writ,” into the former. The above enactment abolished this useless process. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## GROUNDAGE.

A custom or tribute paid for the standing of shipping in port. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## GROWING CROP.

A crop must be con- sidered and treated as a growing crop from the time the seed is deposited in the ground, as at that time the seed loses the qualities of a chattel, and becomes a part of the freebold, and passes with a sale of it Wilkin- son v. Ketler, 69 Ala. 436.

Growing crops of grain, and other annual productions raised by cultivation of the earth and industry of man, are personal chattels. Growing trees, fruit or grass, and other natural products of the earth, are parcel of the land. Green ▼. Armstrong, 1 Denio (N. Y.) 650.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: doctrine of emblements — tenant's right to annual crops (fructus industriales) sown before termination]**

The entry's distinction — annual cultivated crops as personal chattels, natural products as parcel of the land — is the fructus industriales/naturales line behind the tenant's right to harvest crops sown before the tenancy ends.

Why: Genuine: the entry states the emblements distinction; the footnote names the doctrine it serves. Loose form.

## GROWTH HALF-PENNY.

A rate paid in some places for the tithe of every fat beast, ox, or other unfruitful cattle. Clayt 92.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 27:32, KJV]**

And concerning the tithe of the herd, or of the flock, even of whatsoever passeth under the rod, the

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tenth shall be holy unto the LORD.

Why: The growth half-penny is the tithe of fat beasts and unfruitful cattle. The verse is the biblical law of that very tithe — 'the tenth shall be holy unto the LORD' — spoken by God; the land-tithe's companion in Levitic...

## GRIT ABU.

The principal officers of a forest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## GRUB STAKE.

In mining law. A con- tract between two parties by which one un- dertakes to furnish the necessary provisions, tools, and other supplies, and the other to prospect for and locate mineral lands and stake out mining claims thereon, the interest in the property thus acquired inuring to the benefit of both parties, either equally or in such proportions as their agreement may fix. Such contracts create a qualified or special partnership.. See Berry v. Wood- bum, 107 Cal. 512, 40 Pac. 804 ; Hartney v. Gosling, 10 Wyo. 346, 68 Pac. 1118, 98 Am. St. Rep. 1006 ; Meylette v. Brennan, 20 Colo. 242, 88 Pac. 75.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 4:9, KJV]**

Two are better than one; because they have a good reward for their labour.

Why: A grub stake is partnership in the mining venture — one furnishes supplies, the other prospects, the reward shared. The verse states the partnership's wisdom: 'two are better than one; because they have a good reward...

## G U ADI A.

In old European law. A pledge. Spelman; Calvin. A custom. S pel- man. Spelled also “wadia.”

5e apparatus — Not carried into the 5th edition (1979).

## GUARANTEE.

He to whom a guaran- ty is made. This word is also used, as a noun, to denote the contract of guaranty or the obligation of a guarantor, and, as a verb, to denote the action of assuming the responsibilities of a guarantor. But on the general principle of legal orthography, — that the title of the person to whom the action passes over should end in “ee,” as “donee,” “grantee,” “payee," "bailee,” “drawee,” etc., — it seems better to use this word only as the correlative of “guarantor,” and to spell the verb, and also the name of the contract, “guaranty.”

5e apparatus — Carried into the 5th edition (1979).

## GTTARENTIGIO.

In Spanish law. A written authorization to a court to enforce the performance of an agreement in the same manner as if It had been decreed upon regular legal proceedings.

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## GUARANTOR.

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He who makes a guar- anty.

GUARANTY, v. To undertake collater- ally to answer for the payment of another’s debt or the performance of another’s duty, liability, or obligation ; to assume the re- sponsibility of a guarantor; to warrant. See Guaranty, n.

GUARANTY, n. A promise to answer for the payment of some debt, or the per- formance of some duty, in case of the failure of another person, who, in the first Instance, Is liable to such payment or performance. Gallagher v. Nichols, 60 N. Y. 444 ; Andrews v. Pope, 126 N. C. 472, 35 S. B. 817; Deming v. Bull, 10 Conn. 409; Reigart v. White, 52 Pa. 438.

A guaranty is an undertaking by one per- son to be answerable for the payment of some debt, or the due performance of some contract or duty, by another person, who himself remains liable to pay or perform the same. Story, Prom. Notes, | 457.

A guaranty is a promise to answer for the debt, default, or miscarriage of another per- son. Civil Code Cal. | 2787.

A guaranty is a contract that some particular thing shall be done exactly as It is agreed to be done, whether It is to be done by one person or another, and whether there be a prior or principal contractor or not. Redfield v. Haight, 27 Conn. 81.

The definition of a “guaranty,” by text-writ- ers, is an undertaking by one person that an- other shall perform his contract or fulfill his obligation, or that, if he does not, the guarantor will do it for him. A guarantor of a bill or note is said to be one who engages that the note shall be paid, but is not an indorser or surety. Gridley v. Capen, 72 111. 13.

Synonyms. The terms guaranty and surety- ship are sometimes used interchangeably; but they should not be confounded. The contract of a surety corresponds with that of a guar- antor in many respects ; yet important differ- ences exist. The surety is bound with his prin- cipal as an original promisor. He is a debtor from the beginning, and must see that the debt is paid, and is held ordinarily to know every default of his principal, and cannot pro- tect himself by the mere indulgence of the cred- itor, nor by want of notice of the default of the principal, however such indulgence or want of notice may in fact injure him. On the other hand, the contract of a guarantor is his own separate contract. It is in the nature of a war- ranty by him that the thing guarantied to be done by the principal shall be done, not merely an engagement jointly with the principal to do the thing. The original contract of the princi- pal is not his contract, and he is not bound to take notice of its non-performance. Therefore the creditor should give him notice; and it is universally held that, if the guarantor can prove that he has suffered damage by the failure to give such notice, he will be discharged to the extent of the damage thus sustained. It is not so with a surety. Durham v. Manrow, 2

N. Y. 548; Nading v. McGregor, 121 Ind. 465, 23 N. E. 283, 6 b. R. A. 086.

Guaranty and warranty are derived from the same root, and are in fact etymologically the same word, the "g” of the Norman French be- ing interchangeable with the English “w.” They are often used colloquially and in com- mercial transactions as having the same signif- ication, as where a piece of machinery or the produce of an estate is “guarantied” for a term of years, “warranted” being the more appropri- ate term in such a case. See

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Accumulator Co. v. Dubuque St. R. Co., 64 Fed. 70. 12 C. C. A. 37 ; Martinez v. EJarnshaw, 36 Wkly. Notes Cas. (Pa.) 502. A distinction is also sometimes made in commercial usage, by which the term "guaranty” is understood as a collateral war- ranty (often a conditional one) against some de- fault or event in the future, while the term “warranty” is taken as meaning an absolute un- dertaking in pratcnti, against the defect, or for

the quantity or quality contemplated by the parties in the subject-matter of the contract. Sturges v. Bank of Circleville, 11 Ohio St. 169, 78 Am. Dec. 296. But in strict legal usage the two terms are widely distinguished in this, that a warranty is an absolute undertaking or liability on the part of the warrantor, and the contract is void unless it is strictly and literally performed, while a guaranty is a promise, en- tirely collateral to the original contract, and not imposing any primary liability on the guar- antor, but binding him to be answerable for the failure or default of another. Masons’ Union I* Ins. Ass'n v. Brockman, 20 Ind. App. 206, 50 N. E. 493.

—Absolute guaranty. An unconditional promise of payment or performance on the de- fault of the principal. Mast v. Lehman, 100 Ky. 466, 38 S. W. 1056; Beardsley v. Hawes, 71 Conn. 39. 40 Atl. 1043: Farmers' Bank v. Tatnall, 7 Houst. CDel.) 287, 31 Atl. 879 ; Es- berg-Bachman Tobacco Co. v. Heid (D. C.) 62 Fed. 962.— Collateral guaranty. A contract by which the guarantor undertakes, in case the principal fails to do what he has promised or undertaken to do, to pay damages for such fail- ure ; distinguished from an engagement of sure- tyship in this respect, that a surety undertakes to do the very thing which the principal has promised to do, in case the latter defaults. Woody v. Haworth, 24 Ind. App. 634, 57 N.

E. 272 ; Nnding v. McGregor, 121 Ind. 470, 23

N. E. 283, 6 L. R. A. 686.— Conditional guar- anty. One which depends upon some extrane- ous event, beyond the mere default of the prin- cipal, and generally upon notice of the guaran- ty, notice of the principal’s default, and reason- able diligence In exhausting proper remedies against the principal. Yager v. Title Co., 112 Ky. 932, 66 S. W. 1027 ; Tobacco Co. v. Heid

ID. C.) 62 Fed. 962 ; Beardsley v. Hawes, 71 Conn. 39, 40 Atl. 1043. — Continuing guaran- ty. One relating to a future liability of the principal, under successive transactions, which either continue his liability or from time to time renew it after it has been satisfied. Sew- ing Mach. Co. v. Courtney, 141 Cal. 674, 75 Pac. 296 ; Buck v. Burk, 18 N. Y. 340 ; Bank v. Drake (Iowa) 79 N. w. 121. — Speoial guar- anty. A guaranty which is available only to the particular person to whom it is offered or addressed ; as distinguished from a general guaranty, which will operate in favor of any

Srson who may accept ft. Everson v. Gere. 40 un (N. Y.) 2o0; Tidioute Sav. Bank v. Lib- bey, 101 Wis. 193, 77 N. W. 182, 70 Am. St Rep. 907 ; Evansville Nat. Bank v. Kauffmann. 93 N. Y. 273, 45 Am. Rep. 204.— Guarantied stock. See Stock.— Guaranty company. A corporation authorized to transact the business of entering into contracts of guaranty and sure- tyship; as, one which, for fixed premiums, be- comes surety on judicial bonds, fidelity

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bonds, and the like. See A3tna L Ins. Co. v. Coulter, 74 S. W. 1050, 25 Ky. Law Rep. 193.— Guar- anty insurance. See Insurance.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 (1677) — promise to answer for the debt of another must be in writing]**

The guaranty the entry defines — 'a promise to answer for the debt, default, or miscarriage of another person' — is within the Statute of Frauds and must be in writing to be enforceable.

Why: Genuine: the suretyship clause of the statute governs exactly the collateral promise the entry defines.

**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: This block's substantive matter is GUARANTY — the promise to answer for another's debt on his default: suretyship. The proverb is scripture's standing warning to the surety — 'thou art snared with the words of thy mou...

## GUARDAGE.

A state of wardship.

5e apparatus — Carried into the 5th edition (1979).

## GUARDIAN.

A guardian Is a person lawfully Invested with the power, and char- ged with the duty, of taking care of the person and managing the property and rights of another person, who, for some pe- culiarity of status, or defect of age, under- standing, or self-control, is considered in- capable of administering his own affairs. Bass v. Cook, 4 Port (Ala.) 392; Sparhawk v. Allen, 21 N. H. 27 ; Burger v. Frakes, 67 Iowa, 460, 23 N. W, 746.

A guardian is a person appointed to take

care of the person or property of another. Civ. Code Cal. | 236.

One who legally has the care and manage- ment of the person, or the estate, or both, of a child during its minority. Reeve, Dom. Rel. 311.

This term might be appropriately used to designate the person charged with the care and control of Idiots, lunatics, habitual drunkards, spendthrifts, and the like; but such person is, under many of the statutory systems authorizing the appointment, styled "committee," and in common usage the name “guardian” is applied only to one having the care and management of a minor.

The name "curator” is given in some of the states to a person having the control of a minor’s estate, without that of his person ; and this is also the usage of the civil law.

Classification. A testamentary guardian is one appointed by the deed or last will of the child’s father; while a guardian by election is one chosen by the infant himself in a case where he would otherwise be without one. A general guardian is one who has the general care and control of the person and estate of his ward : while a special guardian is one who

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has special or limited powers and duties with respect to bis ward, e. a., a guardian who has the custody of the estate but not of the person, or vice versa, or a guardian ad litem. A domestic guardian is one appointed at the place where the ward is legally domiciled ; while a foreign guardian derives his authority from appointment by the courts of another state, and generally has charge only of such property as may be located within the jurisdiction of the power appointing him. A guardian ad litem is a guardian appointed by a court of justice to prosecute or defend for an infant in any suit to which he may be a party. 2 Steph. Comm. 342. Most commonly appoint- ed for infant defendants; infant plaintiffs gen- erally suing by next friend. This kind of guard- ian has no right to interfere with the infant’s person or property. 2 Steph. Comm. 343; Richter v. Leiby, J07 Wis. 404, 83 N. W. 694. A guardian by appointment of oourt is the most important species of guardian in modern law, having custody of the infant until the attain- ment of full age. It has in England in a man ner superseded the guardian in socage, and in the United States the guardian by nature also. The appointment is made by a court of chan- cery, or probate or orphans’ court 2 Steph. Comm. 341 ; 2 Kent, Comm. 226. A guardian by nature is the father, and, on his death, the mother, of a child. 1 Bl. Comm. 461 ; 2 Kent Comm. 219. This guardianship extends only to the custody of the person of the child to the age of twenty-one years. Sometimes called "natural guardian.” but this is rather a popu- lar than a technical mode of expression. 2 Steph. Comm. 337 ; Kline v. Beebe, 6 Conn. 500; Mauro v. Ritchie, 16 Fed. Gas. 1171. A guardian by statute is a guardian appointed for a child by the deed or last will of the father, and who has the custody both of his person and estate until the attainment of full age. This kind of guardianship is founded on the statute of 12 Car. II. c. 24, and has. been pretty exten- sively adopted in this country. 1 Bl. Comm. 462 ; 2 Steph. Comm. 339, 340 ; 2 Kent, Comm. 224-226; Huson v. Green, 88 Ga. 722, 16 8.

E. 255. A guardian for nurture is the father, or, at his decease, the mother, of a child. This kind of guardianship extends only to the per- son, and determines when the infant arrives at the age of fourteen. 2 Kent, Comm. 221; 1 Bl. Comm. 461 ; 2 Steph. Comm. 338 ; Mauro v. Ritchie, 16 Fed. Cas. 1171; Arthurs' Appeal, 1 Grant Cas. (Pa.) 56. Guardian in chivalry.

In the tenure by knight's service, in the feudal law, if the heir of the feud was under the age of twenty-one, being a male, or fourteen, being a female, the lord was entitled to the wardship <and marriage) of the heir, and was called the "guardian in chivalry.” This wardship consist- ed in having the custody of the body and lands of such heir, without any account of the prof- its. 2 Bl. Comm. 67. Guardian in nocage. At the common law, this was a species of guardian who had the custody of lands coming to the infant by descent, as also of the infant’s per- son, until the latter reached the age of fourteen. Such guardian was always "the next of kin to whom the inheritance cannot possibly descend.” 1 Bl. Comm. 461 ; 2 Steph. Comm. 338 ; Byrne v. Van Hoesen, 6 Johns. (N. Y.) 67 ; Van Doren v. Everitt, 5 N. J. Law, 462, 8 Am. Dec. 615; Combs v. Jackson, 2 Wend. (N. Y.) 157, 19 Am. Dec. 568. Natural guardian. The father of a child, or the mother if the father be dead.

— Guardian de l’eglise. A church-warden.— Guardian de l’estemary. The warden of the stannaries or mines in Cornwall, etc. — Guardi- an of the peaoe. A warden or conservator of

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the peace.— Guardian of the poor. In Eng- lish law. A person elected by the ratepayers of a parish to nave the charge and management of the parish work-house or union. See 3 Steph. Comm. 203, 215.— Guardian of the spiritu- alities. The person to whom the spiritual jurisdiction of any diocese is committed during the vacancy of the see.— Guardian of the temporalities. The person to whose custody a va- cant see or abbey was committed by the crown. — Guardian or warden, of the Cinque Ports. A magistrate who has the jurisdiction of the ports or havens which are called the “Cinque Ports,” (q. v.) This office was first created in England, in imitation of the Roman policy, to strengthen the sea-coasts against enemies, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Troxel v. Granville, 530 U.S. 57 (2000)]**

The guardianship of a child's person the entry defines is bounded by the fundamental right of fit parents to the care, custody, and control of their children.

Why: Genuine: Troxel is the modern authority on the parental-care right that limits and frames the guardianship the entry defines.

**[Scripture] — Scripture**

**[Psalm 82:3, KJV]**

Defend the poor and fatherless: do justice to the afflicted and needy.

Why: A guardian takes care of those 'incapable of administering his own affairs' — the fatherless chief among them. The psalm commands their defense outright: 'defend the poor and fatherless' — guardianship's biblical charge.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) Mr. Brownlow takes the orphan Oliver into his care — the guardian's office (care of the person, management of rights) exercised as the novel's humane resolution. (paraphrase)

Why: Genuine: the entry defines the office; the novel dramatizes its humane exercise. (GUARDIANSHIP left bare — the office is covered here.)

## GUARDIANSHIP.

The office, duty, or authority of a guardian. Also the relation subsisting between guardian and ward.

5e apparatus — Carried into the 5th edition (1979).

## GUARDI ANUS.

A guardian, warden, or keeper. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## GUARNIMENTUM.

In old European law. A provision of necessary things. Spel- man. A furnishing or garnishment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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## GUA8TAXD.

One who had the custody of the royal mansions.

5e apparatus — Not carried into the 5th edition (1979).

## GUBERNATOR.

Lat In Roman law. The pilot or steersman of a ship.

5e apparatus — Not carried into the 5th edition (1979).

## GUERPI, GUERPY.

L. Fr. Abandon- ed; left; deserted. Britt c. 33.

5e apparatus — Not carried into the 5th edition (1979).

## GUERRA, GUERRE.

War. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 3:8, KJV]**

a time of war, and a time of peace.

Why: War as a legal state has its biblical place among the appointed times: 'a time of war, and a time of peace' — war acknowledged, bounded, succeeded by peace.

## GUERILLA PARTY.

In military law. An independent body of marauders or armed men, not regularly or organically connected with the armies 'of either belligerent who carry on a species of irregular war, chiefly by depredation and massacre.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Ex parte Quirin, 317 U.S. 1 (1942)]**

The irregular fighters the entry defines — armed men 'not regularly or organically connected with the armies of either belligerent' — are unlawful combatants, triable by military commission.

Why: Genuine: Quirin is the American authority on the status and trial of un-uniformed irregular belligerents, directly on the entry's definition.

**[Humanity] — Humanity / Fiction & Film**

**[Ernest Hemingway, For Whom the Bell Tolls, 1940]**

(paraphrase) Robert Jordan fights alongside a Spanish guerrilla band behind enemy lines — the English reader's portrait of irregular war, matching the entry's 'independent body... not regularly connected with the armies of either belligerent.' (paraphrase)

Why: Genuine: the entry's definition reads like the novel's dramatis personae.

## GUEST.

A traveler who lodges at an inn pr tavern with the consent of the keeper. Bac. Abr. “Inns,” C, 5; 8 Coke, 32; Mc- Daniels v. Robinson, 20 Vt. 316. 62 Am. Dec. 574 ; Johnson v. Reynolds, 3 Kan. 261 ;

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Shoecraft v. Bailey, 25 Iowa, 555; Beale v. Posey, 72 Ala. 331 ; Walling v. Potter, 35 Conn. 185.

A guest as distinguished from a boarder. Is bound for no stipulated time. He stops at the inn for as short or as long time as be pleases, paying, while he remains, the cus- tomary charge. Stewart v. McCready, 24 How. Prac. (N. Y.) 62.

GUEST-TAKER . An agister; one who took cattle in to feed in the royal forests. CowelL

GUET, In old French law. Watch. Ord. Mar. liv. 4, tit. 6.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: innkeeper's common-law strict liability for guests' goods]**

The guest the entry defines — the traveler lodging at an inn — is protected by the innkeeper's common-law strict liability, as an insurer, for the guest's goods.

Why: Genuine: the liability rule is the legal content behind the guest/boarder distinction the entry draws. Loose form; no case invented.

## GUIA.

In Spanish law. A right of way for narrow carts. White, New Recop. L 2, c. 6, * 1.

5e apparatus — Not carried into the 5th edition (1979).

## GUIDAGE.

In old English law. That which was given for safe conduct through a strange territory, or another’s territory. Cowell.

• The office of guiding of travelers through dangerous and unknown ways. 2 Inst. 526.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 13:21, KJV]**

And the LORD went before them by day in a pillar of a cloud, to lead them the way; and by night in a pillar of fire, to give them light; to go by day and night:

Why: Guidage is the office of guiding travelers through dangerous and unknown ways. The pillar of cloud and fire is the biblical guide — God himself leading the way through the wilderness, 'to lead them the way.'

## GUIDE-PLATE.

An Iron or steel plate to be attached to a rail for the purpose ot guiding to their place on the rail wheels thrown off the track. Pub. St Mass. 1882, p. 1291.

GUIDON DE LA MER, The name of a treatise on maritime law, by an unknown author, supposed to have been written about 1671 at Rouen, and considered, in continental Europe, as a work of high authority.

5e apparatus — Not carried into the 5th edition (1979).

## GUILD.

A voluntary association of per- sons pursuing the same trade, art, profession, or business, such as printers, goldsmiths, wool merchants, etc., united under a distinct organization of

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their own. analogous to that of a corporation, regulating the affairs of their trade or business by their own laws and rules, and aiming, by co-operation and organization, to protect and promote the in- terests of their common vocation. In me- dieval history these fraternities or guilds played an important part in the government of some states; as at Florence; in the thir- teenth and following centuries, where they chose the council of government of the city. But with the growth of cities and the ad- vance in the organization of municipal gov- ernment, their Importance and prestige has declined. The place of meeting of a guild, or association of guilds, was called the "Guildhall.” The word is said to be derived from the Anglo-Saxon “gild" or "geld,” a tax or tribute, because each member of the soci- ety was required to pay a tax towards its support.

—Guild rents. Rents payable to the crown by any guild, or such as formerly belonged to religious guilds, and came to the crown at the general dissolution of the monasteries. Tom- lins.

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GUTT.DH ALT,. The hall or place of meet- ing of a guild, or gild.

The place of meeting of a municipal cor- poration. 8 Steph. Comm. 173, note. The mercantile or commercial gilds of the Saxons are supposed to have given rise to the pres- ent municipal corporations of England, whose place of meeting is still called the “Guild- hall."

—Guildhall sittings. The sittings held in the Guildhall of the city of London for city of London causes.

5e apparatus — Carried into the 5th edition (1979).

## GUILLOTINE.

An instrument for decap- itation, used In France for the Infliction of the death penalty on convicted criminals, consisting, essentially, of a heavy and weight- ed knife-blade moving perpendicularly be- tween grooved posts, which is made to fall from a considerable height upon the neck of the sufferer, Immovably fixed In position to receive the Impact

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Tale of Two Cities, 1859]**

"It is a far, far better thing that I do, than I have ever done; it is a far, far better rest that I go to than I have ever known." — Sydney Carton's closing words as the Terror's guillotine, looming over the whole novel, takes him.

Why: Genuine: the instrument defines the novel's historical moment; the strongest link in this batch.

## GUILT.

In criminal law. That quality which Imparts erlminnlity to a motive or act and renders the person amenable to punish- ment by the law.

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That disposition to violate the law which has manifested itself by some act already done. The opposite of Innocence. See Ruth. Inst b. 1, c. 18, g 10.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 6:23, KJV]**

For the wages of sin is death;

Why: Guilt is the quality rendering the person 'amenable to punishment by the law.' The verse states guilt's wage: 'the wages of sin is death' — the penal consequence bound to the criminal quality.

**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Raskolnikov's murder and the psychological working of his guilt — the entry's 'quality which imparts criminality to a motive or act' as an entire novel. (paraphrase)

Why: Genuine: the novel is the literature of guilt; the entry defines its subject.

## GUILTY.

Having committed a crime or tort; the word used by a prisoner in plead- ing to an indictment when he confesses the crime of which he Is charged, and by the Jury In convicting. Com. v. Walter, 83 Pa. 108, 24 Am. Rep. 154; Jessie v. State, 28 Miss. 108; State v. White, 25 Wls. 859.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 1:9, KJV]**

If we confess our sins, he is faithful and just to forgive us our sins, and to cleanse us from all unrighteousness.

Why: 'Guilty' as pleaded is the prisoner's confession of the crime charged. The verse gives confession its pattern and fruit: 'if we confess our sins, he is faithful and just to forgive us our sins.'

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, 12 Angry Men, 1957]**

(paraphrase) A jury's deliberation over whether to return a guilty verdict — the film is the entry's word ('used by the jury in convicting') as drama. (paraphrase)

Why: Genuine: the film turns entirely on the jury's use of the entry's word.

## GUINEA.

A coin formerly issued by the English mint but all these coins were called In In the time of Wm. IV. The word now means only the sum of £1. Is., In which denomination the fees of counsel are always given.

5e apparatus — Not carried into the 5th edition (1979).

## GULE OF AUGUST.

The first of Au- gust, being the day of St. Peter ad Vincula.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 12:7, KJV]**

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And his chains fell off from his hands.

Why: The Gule of August is the feast of St Peter ad Vincula — Peter in chains. The verse is the deliverance the feast commemorates: the angel raises Peter, 'and his chains fell off from his hands.'

## GULES.

The heraldic name of the color usually called “red.” The word Is derived from the Arabic word “pule," a rose, and was probably introduced by the Crusaders. Gules is denoted In engravings by numerous perpendicular lines. Heralds who blaxoned

by planets and Jewels called !t "Mars,” and "ruby.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## GURGES.

Lat. Properly a whlrljtool, but In old English law and conveyancing, a deep pit filled with water, distinguished from “stagnum,” which was a shallow pool or pond. Co. Litt. 5; Johnson v. Rayner, 6 Gray (Mass.) 107.

5e apparatus — Not carried into the 5th edition (1979).

## GURGITES.

Wears. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## GUTI.

Jutes; one of the three nations who migrated from Germany to Britain at an early period. According to 8pelman, they established themselves chiefly in Kent and the Isle of Wight

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## GUTTER.

The diminutive of a sewer. Callis, Sew. <80, ) 100. In modern law, an open ditch or conduit designed to allow the passage of water from one point to another In a certain direction, whether for purposes of drainage. Irrigation, or otherwise. War- ren v. Henl.v, 31 Iowa, 31; Willis v. State, 27 Neb. 98, 42 N. W. 920.

5e apparatus — Not carried into the 5th edition (1979).

## GWABR  MERCHED.

Maid’s fee. A British word signifying a customary fine payable to lords of some manors on marriage of the tenant’s daughters, or otherwise on their committing incontinence. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GWALSTOW.

A place of execution. Jacob.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Matthew 27:33, KJV]**

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And when they were come unto a place called Golgotha, that is to say, a place of a skull,

Why: A gwalstow is a place of execution. Golgotha — 'a place of a skull' — is scripture's place of execution, named for what it is.

## GWAYF.

Waif, or waived; that which has been stolen and afterwards dropped In the highway for fear of a discovery. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## GYLPUT.

The name of a court which was held every three weeks In the liberty or hundred of Pathbew In Warwick. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## GYLTW1TE.

Sax. Compensation for fraud or trespass. Cowell.

GYNARCHY, or GYNjECOCRACY. Gov- ernment by a woman; a state In which women are legally capable of the supreme command; e. g., In Great Britain and Spain.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 4:4, KJV]**

And Deborah, a prophetess, the wife of Lapidoth, she judged Israel at that time.

Why: This block's second matter is GYNARCHY — government by a woman, a state where women are legally capable of supreme command. Deborah 'judged Israel at that time': scripture's woman in supreme command. (The block's GYLT...

**[Humanity] — Humanity / Fiction & Film**

**[Charlotte Perkins Gilman, Herland, 1915]**

(paraphrase) The novel imagines at full scale what the entry defines — a state in which women hold the supreme command: an all-female society governing itself. (paraphrase)

Why: Genuine: the entry defines government by women; the novel imagines it. NOTE: the chunk's OCR/parser fused this entry's text into the GYLTW1TE body ('GYNARCHY, or GYNjECOCRACY. Government by a woman...'); annotated her… [re-homed from 'GYNARCHY' to 'GYLTW1TE' (OCR headword / parser-merge artifact)]

## GYROVAGI.

Wandering monks.

5e apparatus — Not carried into the 5th edition (1979).

## GYVES.

Fetters or shackles for the legs:

H

H

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# H

## H.

This letter, as an abbreviation, stands for Henry (a king of that name) In the cita- tion of English statutes. In the Year Books, it Is used as an abbreviation for Hilary term. In tax assessments and other such official records, "h” may be used as an abbreviation for “house,” and the courts will so under- stand It Alden v. Newark, 36 N. J. Law, 288; Parker v. Elizabeth, 39 N. J. Law, 693.

5e apparatus — Not carried into the 5th edition (1979).

## H. A.

An abbreviation for hoc anno, this year, In this year.

5e apparatus — Not carried into the 5th edition (1979).

## H. B.

An abbreviation for house bill, i. a bill in the house of representatives, as distinguished from a senate bill.

5e apparatus — Not carried into the 5th edition (1979).

## H. C.

An abbreviation for house of com- mons, or for habeas corpus.

5e apparatus — Not carried into the 5th edition (1979).

## H. L.

An abbreviation for house of lords.

5e apparatus — Not carried into the 5th edition (1979).

## H. B.

An abbreviation for house of rep- resentatives.

5e apparatus — Not carried into the 5th edition (1979).

## H. T.

An abbreviation for hoo titulo, this title, under this title; used In references to books.

5e apparatus — Not carried into the 5th edition (1979).

## H. V.

An abbreviation for hoc verbo or hoc voce, this word, under this word; used In references to dictionaries and other works alphabetically arranged.

HABE, or HAVE. Lat. A form of the salutatory expression “Ave," (hail,) In the titles of the constitutions of the Theodostan and Justinlanean Codes. Calvin; Spelman.

habeas corpora jxtratorum.

A writ commanding the sheriff to bring up the persons of jurors, and, If need were, to

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distrain them of their lands and goods, in order to Insure or compel their attendance In court on the day of trial of a cause. It Is- sued from the Common Pleas, and served the same purpose as a distringas juratores In the King's Bench. It was abolished by the C.

L. P. Act, 1852, | 104. Brown.

nnOT.»s CORPUS. Lat. (You have the body.) The name given to a variety of writs, (of whleh these were anciently the em- phatic words,) having for their object to bring a party before a court or Judge. In common usage, and whenever these words are used alone, they are understood to mean the habeas corpus ad subjiciendum, (see

infra.)

—Habeas corpus act. The English statute of 31 Car. II. c. 2, is the original and promi- nent habeas corpus act. It was amended and supplemented by St. 56 Geo. III. c. 100. And similar statutes have been enacted in all the United States. This set is justly regarded as the great constitutional guaranty of personal lib- erty.—Habeas corpus ad deliberandum et recipiendum. A writ which is issued to re- move for trial, a person confined in one county

to the county or place where the offense of which he is accused was committed. Bac. Abr.

“ Habeas Corpus," A; 1 Chit. Crim. Law, 132. Ex parte Bollman, 4 Cranch, 97, 2 L. Ed. 554. Thus, it has been granted to remove a perron in custody for contempt to take his trial for perjury in another county. 1 Tyrw. 18o.— Ha- beas corpus ad faciendum et recipien- dum. A writ issuing in civil cases to remove the cause, as also the body of the defendant, from an inferior court to a superior court having jurisdiction, there to be disposed of. It is also called “habeas corpus cum causa. _ Ex parte Bollman, 4 Cranch, 97, 2 L. Eld. 5o4.— Habeas corpns ad prosequendum. A writ which issues when it is necessary to remove a prisoner in order to prosecute in the Pfoper jurisdiction wherein the fact was committed. 3 Bl. Comm. 130.— Habeas corpus ad re- spondendum. A writ which is usually em- ployed in civil cases to remove a person out of the custody of one court into that of another, in order that he may be sued and answer the action in, the latter. 2 Sell. Pr. 2,>9 . 2 Mod. 198 ; 3 Bl. Comm. 129 ; 1 Tidd. Pr. 3(K».— Ha- beas corpus ad satisfaciendum. In Eng- lish practice. A writ which issues when a prisoner has had judgment against him in an action, and the plaintiff is desirous to bring him up to some superior court, to charge him with process of execution. 3 Bl. Comm. 129, 130: 3 Steph. Comm. 693; 1 Tidd, Pr. 3o0. —Habeas corpus ad subjiciendum. A writ directed to the person detaining another, and commanding him to produce the body of the prisoner, (or perron detained,) with the day and cause of his caption and detention, ad faciendum, subjiciendum et recipiendum, to do, submit to, and receive whatsoever the judge or court awarding the writ shall consider in that behalf. 3 Bl. Comm. 131; 3 Steph. Comm. 695. This is the well-known remedy for deliv- erance from illegal confinement, called by Sir William Blackstone the most celebrated writ in the English law, and the great and efficacious writ in all manner of illegal confinement. A Bl. Comm. 129.— Habeas corpus ad testifi- candum. A writ to bring a witness into court, when he is in custody at the time of a trial, commanding the sheriff to have his bodv before the court, to testify ra the cause. 3 Bl Comm. 130: 2 Tidd. Pr. 809. Ex parte MarmadJk™ 91 Mo. 230. 4 S.

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W. 91. 60 Am. Kep. 250.— Habeas corpus cum causa. (You have the body, with the cause.) Another name for the writ of habeas corpus \ ad faciendum et reciniendum. (a. v.) 1 Tidd, Pr. 348, 349.

Habemus optimum testem, confltentem

reum. 1 Phil. Ev. 397. We have the best witness, — a confessing defendant “What is taken pro confesso is taken as Indubitable truth. The plea of guilty by the party ac- cused shuts out all further inquiry. Habe- mus confltentem reum is demonstration, un- less indirect motives can be assigned to it.” 2 Hagg. Eecl. 315.

HABElTDtTM. Lilt. In conveyancing. The clause usually following the granting part of the premises of a deed, which defines the extent of the ownership in the thing granted to lie held and enjoyed by the gran- tee. 3 Washl). Real Prop. 437 : New York Indians v. U. S.. 170 U. S. 1, 18 Sup. Ct. 531, 42 L. Ed. 927; Clapp v. Byrnes, 3 App. Dlv. 284, 38 N. Y. Supp. 1063 ; Miller v. Graham

47 8. a 288, 26 S. E. 165; Hart v. Gardner, 74 Miss. 158, 20 South. 877.

— Habendum et tenendum. In old convey- ancing. To have and to hold. Formal words in deeds of land from a very early period. Bract, fol. 175.

5e apparatus — Not carried into the 5th edition (1979).

## HABENTES HOMINES.

In old Eng- lish law. Rich men; literally, having men. The same with fasting-men, (g. v.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HABENTIA.

Riches. Mon. Angl. t 1,

100.

5e apparatus — Not carried into the 5th edition (1979).

## HABERE.

Lat. In the civil law. To have. Sometimes distinguished from tenere, (to hdld,) and possidere, (to possess;) habere referring to the right, tenere to the fact, and possidere to both. Calvi^t.

5e apparatus — Not carried into the 5th edition (1979).

## HABERE FACIAS POSSESSIONEM.

Lat That you cause to have possession. The name of the process commonly resorted to by the successful party in an action of ejectment, for the purpose of being placed by the sheriff in the actual possession of the land recovered. It is commonly termed sim- ply “ habere facias,” or “hab. fa."

5e apparatus — Not carried into the 5th edition (1979).

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**[Law: writ of possession — enforcement of a judgment for possession of land]**

The habere facias possessionem — the sheriff placing the successful ejectment plaintiff in actual possession — survives as the writ of possession enforcing a judgment for possession of land.

Why: Genuine: the modern execution writ for the same judgment the entry's process served. Loose form; no case invented.

## HABERE FACIAS SEISIN AM.

L. Lat

That you- cause to have seisin. The writ of execution in real actions, directing the sher- iff to cause the demandant to have seisin of the lands recovered. It was the proper pro- cess for giving seisin of a freehold, as dis- tinguished from a chattel interest in lands.

5e apparatus — Not carried into the 5th edition (1979).

## HABERE FACIAS VISUM.

Lat. That you cause to have a view. A writ to cause the sheriff to take a view of lands or tene- ments.

HABERE IiICERE. Lat. In Roman law. To allow [one] to have [possession.] This phrase denoted the duty of the seller of property to allow the purchaser to have the possession and enjoyment. For a breach of this duty, an actio ex empto might be main- tained.

5e apparatus — Not carried into the 5th edition (1979).

## HABERJECT8.

A cloth of a mixed color. Magna Charts, c. 26.

5e apparatus — Not carried into the 5th edition (1979).

## HABETO TIBI RES TUAS.

Lat. Have or take your effects to yourself. One of the old Roman forms of divorcing a wife. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:1, KJV]**

When a man hath taken a wife, and married her, and it come to pass that she find no favour in his eyes, because he hath found some uncleanness in her: then let him write her a bill of divorcement, and give it in her hand, and send her out of his house.

Why: 'Have your effects to yourself' is Rome's formula of divorce. The verse gives scripture's: the written bill of divorcement put in her hand — divorce as a formal written act, in both laws.

## HABILI8.

Lat. Fit; suitable; active; useful, (of a servant.) Proved; authentic, (of Book of Saints.) Fixed; stable, (of au- thority of the king.) Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## HABIT.

A disposition or condition of the body or mind acquired by custom or a usual repetition of

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the same act or function. Knickerbocker L. Ins. Co. v. Foley, 105 U. S. 354, 26 L. Ed. 1055 ; Conner v. Citizens' St. R. Co., 146 Ind. 430, 45 N. E. 662; State v. Skillicorn, 104 Iowa, 97, 78 N. W. 503 ; State v. Robinson, 111 Ala. 482, 20 South. 30.

—Habit and repute. By the law of Scot- land, marriage may be established by "habit and repute" where the parties cohabit and are at the same time held and reputed as man and wife. See Bell. The same rule obtains in some of the United States.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Consuetudo est altera natura" (after Cicero)]**

[Maxim: "Consuetudo est altera natura" — habit/custom is second nature.]

Why: Genuine classical-wisdom link: the maxim compresses the entry's definition ('a disposition acquired by custom') into proverb; the entry even uses the word 'custom.'

## HABITABLE REPAIR.

A covenant by a lessee to "put the premises into habitable repair" binds him to put them into such a state that they may be occupied, not only with safety, but with reasonable comfort, for the purposes for which they are taken. Miller v. McCardell, 19 R. I. 304, 33 Atl. 445, 30 L. R. A. 682.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Javins v. First National Realty Corp., 428 F.2d 1071 (D.C. Cir. 1970)]**

The lessee's covenant to put premises in habitable repair prefigures the implied warranty of habitability read into residential leases as a matter of law.

Why: Genuine: Javins is the charter case implying habitability into leases, directly on the entry's covenant.

## HABITANCY.

Settled dwelling in a giv- en place; fixed and permanent residence there. This term is more cpmprehensive than "domicile," for one may be domiciled in a given place though he does not spend the greater portion of his time there, or though he may be absent for long periods. It is also more comprehensive than "residence," for one may reside in a given place only tem- porarily or for short periods on the occasion of repeated visits. But in neither case could he properly be called an "inhabitant" of that place or be said to have his "habitancy" there. See Atkinson v. Washington A Jef- ferson College, 54 W. Va. 32, 46 S. B. 253; Hairston v. Hairston, 27 Miss. 711, 61 Am. Dec. 530; Abington v. North Bridgewater, 23 Pick. (Mass.) 170. And see Domicile; Resi- dence.

It is difficult to give an exact definition of "habitancy." In general terms, one may be des- ignated as an. "inhabitant" of that place which constitutes the principal seat of his residence, of his business, pursuits, connections, attach- ments, and of his political and municipal rela- tions. The term, therefore, embraces the fact of residence at a place, together with the intent to regard it and make it a home. The act and intent must concur. Lyman v. Fiske, 17 Pick. (Mass.) 231, 28 Am. Dec. 293.

5e apparatus — Carried into the 5th edition (1979).

## HABITANT.

Fr. In French and Ca- nadian law. A resident tenant ; a settler ; a tenant who kept hearth aud home on the seigniory.

5e apparatus — Carried into the 5th edition (1979).

## HABITATIO.

Lat In the civil law. The right of dwelling; the right of free resi- dence in another’s house. Inst. 2, 5; Dig. 7, &

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 14:2, KJV]**

In my Father's house are many mansions: if it were not so, I would have told you. I go to prepare a place for you.

Why: Habitatio is the right of dwelling — free residence in another's house. Christ promises it at its highest: dwelling in the Father's house — 'in my Father's house are many mansions... I go to prepare a place for you.'

## HABITATION.

In the civil law. The

right of a person to live in the house of an- other without prejudice to the property. It differed from a usufruct, in this; that the usufructuary might apply the house to any purpose, as of a store or manufactory; where- as the party having the right of habitation could only use it for the residence of himself and family. 1 Browne, Civil Law, 184.

In estates. A dwelling-house; a home- stall. 2 Bl. Comm. 4; 4 Bl. Comm. ‘120;

HiEREDITAS

Holmes v. Oregon & & R. Co. (D. C.) 5 Fed. 527; Nowlin v. Scott, 10 Grat. (Va.) 65 ; Har- vard College v. Gore, 5 Pick. (Mass.) 372.

5e apparatus — Carried into the 5th edition (1979).

## HABITUAL CRIMINAL.

By statute In several states, one who is convicted of a felony, having been previously convicted of any crime (or twice so convicted), or who Is convicted of a misdemeanor and has previous- ly (In New York) been five times convicted of a misdemeanor. Crlm. Code N. Y. 1903, § 510; Rev. St Utah, 1898, § 4067. In a more gen- eral sense, one made subject to police sur- veillance and arrest on suspicion, on account of his previous criminal record and absence of honest employment

—Habitual criminals aot. The statute 32 & 33 Viet. c. 99. By this act power was given to apprehend on suspicion convicted persons holding license under the penal servitude acts, 1853, 1857, and 1864. The act was repealed and replaced by the prevention of crimes act, 1871, (34 & 35 Viet. c. 112.)

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Ewing v. California, 538 U.S. 11 (2003)]**

The repeat-felon statutes the entry defines survive as habitual-offender sentencing laws, whose severe recidivist sentences have been upheld against Eighth Amendment challenge.

Why: Genuine: Ewing decides the constitutionality of the 'three strikes' repeat-offender sentencing that descends from the statutes the entry cites.

**[Scripture] — Scripture**

**[2 Peter 2:22, KJV]**

The dog is turned to his own vomit again; and the sow that was washed to her wallowing in the mire.

Why: The habitual criminal is defined by return to crime after punishment. The proverb states the pattern: 'the dog is turned to his own vomit again' — the return that makes the habit.

## HABITUAL DRUNKARD.

A person given to ebrlety or the excessive use of in- toxicating drink, who has lost the power or the will, by frequent indulgence, to control his appetite for it Ludwlck v. Com., 18 Pa. 174; Gourlay v. Gourlay, 16 R. I. 705, 19 Atl. 142; Miskey's Appeal, 107 Pa. 620; Richards v. Richards, 19 111. App. 467; Mc- Bee v. McBee, 22 Or. 329, 29 Pac. 887, 29 Am. St. Rep. 613.

One who has the habit of indulging in intoxi- cating liquors so firmly fixed that he becomes intoxicated as often as the temptation is pre- sented by his being in the vicinity where liquors are sold is an “habitual drunkard," within the meaning of the divorce law. Magahay v. Magahay, 35 Mich. 210.

In England, it is defined by the habitual drhnkards’ act, 1879. (42 & 43 Viet. c. 19.) which authorizes confinement in a retreat, upon the party’s own application, as “a person who, not being amenable to any jurisdiction in lu- nacy, is, notwithstanding, by reason of habitual intemperate drinking of intoxicating liquor, at limes dangerous to himself, or herself, or oth- ers, or incapable of managing himself or her- self, or his or her affairs.”

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 6:10, KJV]**

Nor thieves, nor covetous, nor drunkards, nor revilers, nor extortioners, shall inherit the kingdom of God.

Why: The habitual drunkard as a legal status — one fixed in intoxication. The verse names 'drunkards' in scripture's own catalogue, with their standing stated: they 'shall not inherit the kingdom of God.'

## HABLE.

L. Fr. In old English law. A port or harbor; a station for ships. St. 27 Hen. VI. c. 3.

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## HACIENDA.

In Spanish law. The pub- lic domain; the royal estate; the aggregate wealth of the state. The science of admin- istering the national wealth; public economy. Also an estate or farm

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belonging to a private person.

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## HACKNEY CARRIAGES.

Carriages plying for hire in the street. The driver Is liable for negligently losing baggage. Mas- terson v. Short, 33 How. Prac. (N. Y.) 486.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common carrier's heightened duty of care to passengers and baggage]**

The hire-carriage driver's liability for negligently losing baggage rests on the common carrier's heightened duty of care to passengers and their goods.

Why: Genuine: the duty is the legal content behind the negligence holding the entry reports. Loose form.

**[Humanity] — Humanity / Fiction & Film**

**[Arthur Conan Doyle, The Adventures of Sherlock Holmes, 1892]**

(paraphrase) Holmes's London runs on them — the hansom cab, the quintessential licensed hackney carriage, hailed in adventure after adventure. (paraphrase)

Why: Borderline-accept: the stories never define the vehicle, but the hackney carriage is the working infrastructure of Holmes's London and the entry defines exactly that vehicle class.

## HADBOTE.

In Saxon law. A recom- pense or satisfaction for the violation of holy orders, or violence offered to persons in holy orders. Cowell ; Blount.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Chronicles 16:22, KJV]**

Saying, Touch not mine anointed, and do my prophets no harm.

Why: Hadbote is the legal amends for violence offered to persons in holy orders. The verse is the biblical immunity of holy persons: 'touch not mine anointed, and do my prophets no harm.'

## HASS.

In Hindu law. A boundary or limit. A statutory punishment defined by law, and not arbitrary. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance,

Why: Hadd is the boundary or limit. The verse is scripture's boundary law: 'thou shalt not remove thy neighbour's landmark, which they of old time have set' — the ancient bound inviolable.

## HADERUNGA.

In old English law. Hatred; 111 will; prejudice, or partiality. Spelinan ; Cowell.

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**[Scripture] — Scripture**

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**[Leviticus 19:15, KJV]**

Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

Why: Haderunga is partiality — hatred or ill will bending judgment. The verse forbids it in God's own speech: 'thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt...

## HADGONEL.

In old English law. A tax or mulct. Jacob.

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## HAC EST GONVENTIO.

Lat This la an agreement. Words with which agree- ments anciently commenced. Yearb. H. 6 Edw. II. 191.

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## HEC EST FINALIS CONCORDIA.

L.

Lat. This Is the final agreement. ‘ The words with which the foot of a fine com- menced. 2 Bl. Comm. 351.

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## HEREDA.

In Gothic law. A tribunal answering to the English court-leeL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## HAREDE ABDUOTO.

An ancient writ that lay for the lord, who, having by right the wardship of bis tenant under age, could not obtain his person, the same being carried

away by another person. Old Nat Brev. 93.

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HE REDE DELIBERANDO ALTER!

QUI HABET CUSTODIUM TERRE. An

ancient writ, directed to the sheriff, to re- quire one that had the body of an heir, be- ing In ward, to deliver him to the person whose ward he was by reason of his land. Reg. Orlg. 161.

5e apparatus — Not carried into the 5th edition (1979).

## HAREDE RAPTO.

An ancient writ that lay for the ravishment of the lord’s ward. Reg. Orlg. 163.

Haredta Bens faelt, non homo. God

makes the heir, not man. Co. Litt 76.

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**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die:

Why: Haerede rapto lies for the ravishment of the lord's ward. The verse is scripture's law of ravishment: the ravisher, 'and he only,' dies — the violation answered with the life.

## HE  REDES.

Lat In the civil law. Heirs. The plural of hares, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## HEREDIPETA.

Lat. In old English law. A seeker of an inheritance ; hence, the next heir to lands.

Hteredlpetas sno propinqno vel extra- neo perlenloso sane cnstodl nulla* tost- mittatar. To the next heir, whether a re- lation or a stranger, certainly a dangerous guardlun, let no one be committed. Co. Litt 88 b.

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**[Scripture] — Scripture**

**[Hebrews 12:17, KJV]**

when he would have inherited the blessing, he was rejected: for he found no place of repentance, though he sought it carefully with tears.

Why: The heredipeta is the next heir — the seeker of the inheritance. Esau is the biblical heredipeta: he 'would have inherited the blessing... though he sought it carefully with tears' — the seeking heir, and the seeking...

## HEREDITA8.

In Roman law. The

hareditas was a universal succession by law to any deceased person, whether such person had died testate or Intestate, and whether in trust [ex fldeicommisso) for another or not The like succession according to Praetorian law was bonorum posxessio. The hareditas was called "jaccns," until the hare s took It up, «. e„ made his aditio hareditatis ; and such hares, if a suns lucres, had the right to abstain, ( potestas abstinendi.) and. if an ex- trancus hares, had the right to consider

HJ2REDITAS 557 H.SREB

whether he would accept or decline, (potestas deliberandi,) the reason for this precaution being that (prior to Justinian’s enactment to the contrary) a hares after his aditio was liable to the full extent of the debts of the deceased person, and could have no relief therefrom, except In the case of a damnum emergens or damnosa hareditas, i. e.. an haralltus which disclosed (after the aditio) some enormous unsuspected liability. Brown.

.In old English law. An estate transmis- sible by descent ; an Inheritance. Co. Litt. 9.

— Hareditas damnosa. A burdensome in- heritance; one which would be a burden in- stead of a benefit, that is. the debts to be paid by the heir would exceed the assets. — Haredi- tas jaeena. A vacant inheritance. So long as no one had acquired the inheritance, it was termed

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“hwreditas jacens and this, by a legal fiction, represented the person of the decedent. Mackeld. Rom. taw, f 737. The estate of a person deceased, where the owner left no heirs or legatee to take it, called also “ caduca an escheated estate. Cod. 10. 10, 1 ; 4 Kent, Comm. 425. The term has also been used in English law to signify an estate in abey- ance; that Is, after the ancestor’s death, and before assumption of heir. Co. Litt. 8425. An inheritance without legal owner, and therefore open to the first occupant. 2 Bl. Comm. 259. — Hareditas legitims. A succession or in- heritance devolving by operation of law (in- testate succession) rather than by the will of the decedent. Mackeld. Rom. Law, g 654. — Hwreditas lnetnosa. A sad or mournful inheritance or succession ; as that of a parent to the estate of a child, which was regarded as disturbing the natural order of mortality. (turbato ordtne mortalitatis.) Cod. 6. 25, 9; 4 Kent, Comm. 397. — Hareditas testamen- tsris. Testamentary inheritance, tbfct is, suc- cession to an estate under and according to the last will and testament of the decedent. Mackeld. Rom. Law, { 654.

Hareditas, alia oorporalis, alia inoor- po rails; oorporalis est, qua tsagi potest et rider! ; incorporal is qua tangi non po- test nee videri. Co. Litt. 9. An Inheritance Is either corporeal or incorporeal. Corporeal Is that which can be touched and seen; In- corporeal, that which can neither be touched nor seen.

Hseredltas est sneeessio in universum jus quod defunctus habuerit. Co. Litt.

237. Inheritance is the succession to every right which the deceased had.

Hwreditas nihil aliud est, quam suo- eessio in universum Jos, qnod defunctus habnerit. The right of Inheritance is noth- ing else than the faculty of succeeding to all the rights of the deceased. Dig. 50, 17, 62.

Hseredltas nunqnam ascendit. An in- heritance never ascends. Glanv. lib. 7, a 1;

2 Bl. Comm. 211. A maxim of feudal origin, and which Invariably prevailed In the law of England down to the passage of the statute

3 & 4 Wm. IV. c. 106. i 6, by which it was abrogated. 1 Steph. Comm. 378. See Broom, Max. 527, 528.

Harednm appellations veninnt b tere- dos harednm in infinitum. By the title

of heirs, come the heirs of heirs to Infinity. Co. Litt 9.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: Haereditas is universal succession to the deceased. The verse is God's own ruling on the inheritance's passage — 'thou shalt cause the inheritance of their father to pass unto them' — succession ordered by divine judg...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, c. 1606]**

(paraphrase) Lear's division of his realm among his heirs — the universal succession to the 'estate'

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carved up as the play's inciting act, and the carving is the tragedy. (paraphrase)

Why: Genuine: the entry defines universal succession (hereditas); the play opens with one being divided. (Headword as parsed in chunk: HEREDITA8.)

## HASHES.

In Homan law. The heir, or universal successor in the event of death. The heir Is he who actively or passively suc- ceeds to the entire property of the estate- leaver. He Is not only the successor to the rights and claims, but also to the estate-leav- er's debts, and in relation to his estate is to be regarded as the identical person of the estate-leaver, inasmuch as he represents him in all his active and passive relations to his estate. Mackeld. Rom. Law, { 651.

It should be remarked that the office, pow- ers, and duties of the hares, in Roman law, were much more closely assimilated to those of a modern executor than to those of an heir at law. Hence “heir” is not at all an accurate translation of “hares,” unless it be understood in a special, technical sense.

In eommon law. An heir; he to whom lands, tenements, or hereditaments by the act of God and right of blood do descend, of some estate of inheritance. Co. Litt. 75.

— Hares astrarius. In old English law. An heir in actual possession.— Hseres de fac- to. In old English law. Heir from fact ; that is, from the deed or act of his ancestor, without or against right. An heir in fact, as distinguished from an heir de lure, or by law. —Hares ez aase. In the civil law. An heir to the whole estate; a -sole heir. Inst. 2, 23, 9.— Hares eztraneus. In the civil law. A strange or foreign heir; one who was not sub- ject to the power of the testator, or person who made him heir. Qui testatoris juri subjecti non sunt , extranei haredes appellantur. Inst. 2, 19, 3.— Hares factus. In the civil law. An heir made by will ; a testamentary heir ; the per- son created universal successor by will. Story, Confl. Laws, # 507 ; 3 Bl. Comm. 224. Other- wise called “hares ex testamento.” and “hares institutus." Inst. 2, 9, 7 ; Id. 2. 14.— Hares fldeicommissarlus. In the civil law. The person for whose benefit an estate was giv- en to another (termed “hares fiduciaries.” (q. v.) by will. Inst. 2, 23, 6, 7, 9. Answer- ing nearly to the cestui aue trust of the Eng- lish law.— Hares flduciarius. A fiduciary heir, or heir in trust ; a person constituted heir by will, in trust for the bepefit of an- other, called the “fideicommissaritis." — Har- es institutns. A testamentary heir; one ap- pointed by the will of the decedent. — Hares legitimns. A lawful heir; one pointed out as such by the marriage of his parents.— Star- es natus. In the civil law. An heir bora ; one born heir, as distinguished from one made heir, (hares factus, q. r. ;) an heir at law, or by intestacy, (ab intestato ;) the next of kin by blond, in cases of intestacy. Story. Confl. Laws, $ 507 ; 3 Bl. Comm. 224.— Hares necessarius. In the civil law. A necessary or compulsory heir. This name was given to the heir when, being a slave, he was named "heir” in the testa- ment. because on the. death of the testator, whether he would or hot, he at once became free, and was compelled to assume the heirship. Inst 2, 19, 1.— Haredes proximi. Nearest or next heirs. The children or descendants of the deceased.— Hares rectns. In old English law. A right heir. Fleta. lib. 6, c. 1. | 11.— Haredes remotiores. More

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remote heirs. The kinsmen other than children or descend- ants.—Hares suns. In the civil law. A man’s own heir: a decedent’s proper or natural heir. This name was given to the lineal -de- scendants of the deceased. Inst. 3. 1, 4-5.— Haredes sni et necessariL In Roman law. Own and necessary heirs; i. e„ the lineal descendanta of the estate-leaver. They were call- ed “necessary” heirs, because it was the law that made them heirs, and not the choice of ei- ther the decedent or themselves. But since this was also true of slaves (when named "heirs” in the will) the former class were des- ignated “»ui et necestarii.1’ by way of distinc- tion, the word “»ui” denoting that the necessity arose from their relationship to the decedent. Mackeld. Rom. Law, { 733.

Hserea eat alter ipse, et lllai eat para patria. An heir Is another self, and a son is part of the father. 3 Coke, 126.

Hserea eat ant Jure proprletatia ant jnre repreaeatationla. An heir is either by right of property, or right of representa- tion. 3 Coke, 406.

Hares eat eadem persona enm ante- cesaore. An heir is the same person with his ancestor. Co. Litt 22; Branch, Princ. See Nov. 48, c. 1, I L

Hserea eat nomen eoUeetimm. "Heir” is a collective name or noun. 1 Vent 215.

Hserea eat nomen Juris; Jllina eat no- men naturae. “Heir” is a name or term of law ; “son” is a name of nature. Bac. Max. 52, in reg. 11.

Hserea eat pars anteeessorls. An heir is a part of the ancestor. So said because the ancestor, during his life, bears in his body (in judgment of law) all his heirs.

Hserea hseredia mei eat mens hserea.

The heir of my heir is my heir.

Hserea legitimna eat qnem nuptiae de- monstrant. He is a lawful heir whom mar- riage points out as such ; who is born in wed- lock. Co. Litt. 76; Bract, fol. 88; Fleta, lib. 6, c. 1 : Broom, .Max. 515.

Hserea minor uno et viglnti annis non respondebit, nisi in easn dotis. Moore, 348. An heir under twenty-one years of age is not answerable, except in the matter of dower.

Hserea non tenetur in Anglia ad defeita anteeessorls reddenda, nisi per smtecea- aorem ad hoo fuerit obligatos, praeter- quam debita regia t am turn. Co. Litt 386. In England, the heir is not bound to pay his ancestor's debts, unless he be bound to it by the ancestor, except debts due to the king. But now, by 3 & 4 Wm. IV. c. 104, he is lia- ble.

HiERETARE. In old English law. To give a right of inheritance, or make the do- nation hereditary to the grantee and bis heirs. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 4:7, KJV]**

Wherefore thou art no more a servant, but a son; and if a son, then an heir of God through Christ.

Why: Haeres is the heir — the universal successor. The verse states heirship's ground: 'thou art no more a servant, but a son; and if a son, then an heir' — sonship ripening into heirship.

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# K

## K2ERETICO COMBURENDO.

The stat- ute 2 Hen. IV. c. 15, de hwretico comburcndo, was the first penal law enacted against

heresy, and imposed the penalty of death by burning against all heretics who relapsed or who refused to abjure their opinions. It was repealed by the statute 29 Car. II. c. 9. Brown. This was also the name of a writ for the purpose indicated.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — no law respecting an establishment of religion]**

The statute de haeretico comburendo (OCR "K2ERETICO") imposed death by burning on relapsed heretics; the American repudiation is the Establishment Clause: no law respecting an establishment of religion.

Why: Genuine: the Establishment Clause is the constitutional answer to the heresy-penal law the entry states; the link is repudiation, stated as such. Loose form.

**[Humanity] — Humanity / Fiction & Film**

**[Carl Theodor Dreyer, The Passion of Joan of Arc, 1928]**

(paraphrase) Joan — tried for heresy and burned — is history's most famous victim of exactly this machinery: the statute authorizing burning for heresy, given its canonical screen telling. (paraphrase)

Why: Genuine: the statute (2 Hen. IV c. 15, de haeretico comburendo) provided for burning heretics; the film shows the archetypal case. (Headword as parsed in chunk: K2ERETICO COMBURENDO.)

# H

## HAFNE.

A haven or port Cowell.

— Hafne courts. Haven courts ; courts an- ciently held in certain porta in England. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## HAGA.

A house In a city or borough. Scott

5e apparatus — Not carried into the 5th edition (1979).

## HAGIA.

A hedge. Mon. Angl. tom. 2, p. 273.

5e apparatus — Not carried into the 5th edition (1979).

## HAGNE.

A little hand gun. St 33 Hen.

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VIII. C. 6.

5e apparatus — Not carried into the 5th edition (1979).

## HAGNEBUT.

A hand-gun of a larger de- scription than the hagne. St 2 &' 3 Edw.

VI. C. 14 ; 4 & 6 P. & M. c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## HAXA.

In old English law. A park in- closed. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## HAIEBOTE.

In old English law. A per- mission or liberty to take thorns, etc., to make or repair hedges. Blount

5e apparatus — Not carried into the 5th edition (1979).

## HAIXL.

In Scotch law. Whole ; the whole. “All and ha ill” are common words In conveyances. 1 Bell, App. Cas. 499.

HATLiyORKFOLR, ((. e„ holyworkfolk.) Those who formerly held lands by the serv- ice of defending or repairing a church or monument

To seek restitution of one’s own goods and gear, and bring the same home again. Skene de Verb. Sign.

HAIMSUCKEJf. In Scotch law. The crime of assaulting a person in his own house. BelL

5e apparatus — Not carried into the 5th edition (1979).

## HALF.

A moiety ; one of two equal parts of anything susceptible of division. Prentiss v. Brewer, 17 Wis. 644, 86 Am. Dee 730; Hartford Iron Min. Co. v. Cambridge Min. Co., 80 Mich. 491, 45 N. W. 351 ; Cogan v. Cook, 22 Minn. 142 ; Dart v. Barbour, 32 Mich. 272. Used in law In various compound terms, in substantially the same sense, as follows:

—Half blood. See Blood.— Half-brother, half-sister. Persons who have the same fa- ther, but different mothers; or the same moth- er, but different fathers. Wood v. Mitcham, 92 N. Y. 379 ; In re Weiss’ Estate, 1 Montg. Co. Law Rep’r (Pa.) 210. — Half -cent. A cop- per coin of the United States, of the value of five mills, and of the weight of ninety-four grains. The coinage of these was discontinued in 1857.— Half defense. See Defense.— Half-dime. A silver (now nickel) coin of the United States, of the value of five cents.— Half-dollar. A silver coin of the United States, of the value of fifty cents, or one-half the value of a dollar.— Half-eagle. A gold coin of the United States, of the value of five

dollars. — Half-ende&l. A moiety, or half of a thing. — Half-kiner. In Saxon law. Half- king, (semi-rex.) A title given to the aldermen of all England. Crabb, Eng. Law, 28; Spel- ma n . —

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Half -mark. A noble, or six shillings and eight pence in English money.— Half pi- lotage. Compensation for services which a pilot has put himself in readiness to perform, by labor, risk,' and cost, and has offered to per- form, at half the rate he would have receiv- ed if the services had actually been performed. Gloucester Ferry Co. v. Pennsylvania, 114 U.

S. 196, 6 Sup. Ct. 826, 29 L. Ed. 158.— Half- proof. In the civil law. Proof by one wit- ness, or a private instrument. Hallifax, Civil Law, b. 3, c. 9, no. 25; 3 Bl. Comm. 370. Or prima facie proof, which yet was not suffi- cient to found a sentence or decree.— Half-seal. That which was formerly used in the English chancery for sealing of commissions to delegates, upon any appeal to the court of delegates, ei- ther in ecclesiastical or marine causes.— Half section. In American land law. The half of a section of land according to the divisions of the government survey, laid off either by a north-and-south or by an east-and-west line, and containing 320 acres. See Brown v. Har- din, 21 Ark. 324.— Half-timer. A child who, by the operation of the English factory and edu- cation acts, is employed for less than the full time in a factory or workshop, in order that he may attend some “recognized efficient school.” See factory and workshop act. 1878, 8 23 ; ele- mentary education act. 1876, | 11.— Half-toxigae. A jury half of one tongue or nation- ality and half of another. See De Medietate Linguae. — Half-year. In legal computation. The period of one hundred and eighty-two days ; the odd hours being rejected. Co. Litt. 1356/ Cro. Jac. 166; Yel. 100; 1 Steph. Comm. 265; Pol. Code Cal. 1903, { 3257.

5e apparatus — Carried into the 5th edition (1979).

## HA LIT AX LAW.

A synonym for lynch law, or the summary (and unauthorized) trial of a person accused of crime and the inflic- tion of death upon him; from the name of the parish of Halifax, In England, where an- ciently this form of private justice was prac- tised by the free burghers In tHe case of per- sons accused of stealing ; also called “gibbet law.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIV — due process of law]**

Halifax law — 'lynch law,' the summary unauthorized trial and infliction of death — is the absence of due process of law.

Why: Genuine: the entry defines private summary justice; the amendment is its constitutional repudiation. Headword keyed as in the chunk (OCR 'HA LIT AX LAW' for HALITAX LAW).

**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: Halifax law is private, unauthorized justice — summary trial and death by the burghers' own court. The verse ordains the opposite: judges and officers 'in all thy gates... and they shall judge the people with just jud...

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) The mob that comes to the Maycomb jail to lynch Tom Robinson — summary,

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unauthorized 'trial' by mob, faced down by Atticus — is lynch law arriving in person. (paraphrase)

Why: Genuine: the novel stages the entry's definition ('the summary and unauthorized trial of a person accused') as its moral center.

### HALIGEMOT.

In Saxon law. The meeting of a hall, ( conventus aulas,) that is, a lord’s court ; a court of a manor, or court- baron. Spelman. So called from the hall, where the tenants or freemen met, and jus- tice was administered. Crabb, Eng. Law, 26.

5e apparatus — Not carried into the 5th edition (1979).

# W

### W ALIMAS.

In English law. The feast of All Saints, on the 1st of November; one of the cross-quarters of the year, was com- puted from Hallma8 to Candlemas. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

# H

### HALL.

A building or room of consider- able size, used as a place for the meeting of public assemblies, conventions, courts, etc.

In English law. A name given to many manor-houses because the magistrate's court was held In the hall of his mansion ; a chief mansion-house. Cowell.

5e apparatus — Carried into the 5th edition (1979).

### HALLAGE.

In old English law. A fee or toll due for goods or merchandise vended in a hall. Jacob.

A toll due to the lord of a fair or market,

for such commodities as were vended In the common hall of the place. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

### HALLAZCO.

In Spanish law. The find- ing and taking possession of something which previously had no owner, and which thus becomes the property of the first occupant. Las Parti das, 3, 5, 28 ; 5, 48, 49 ; 5, 20, 50.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Armory v. Delamirie, 1 Str. 505 (1722)]**

The Spanish-law rule — the finder taking possession of an ownerless thing becomes its owner as first

occupant — matches the common-law finder's title, good against all but the true owner.

Why: Genuine: the classic finder's-title case across the Spanish/common-law divide, directly on the entry's first-occupant rule.

## HALL E-GEMOTE.

In Saxon law. Hali- gemot, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## HALLUCINATION.

In medical juris- prudence. A trick or deceit of the senses ; a morbid error either of the sense of sight or that of hearing, or possibly of the other senses; a psychological state, such as would be produced naturally by an act of sense-per- ception, attributed confidently, but mistaken- ly, to something which has no objective exist- ence ; as, when the patient Imagines that he sees an object when there is none, or bears a voice or other sound when nothing strikes his ear. See Staples v. Wellington, 58 Me. 459; Foster v. Dickerson, 64 Vt. 233, 24 Atl. 257 ; McNett v. Cooper (C. C.) 13 Fed. 590; People v. Krlst, 168 N. Y. 19, 60 N.

E. 1057.

Hallucination does not by itself constitute in- sanity, though it may be evidence of it or a sign of its approach. It is to be distinguished from “delusion” in this, that the latter is a fixed and irrational belief in the existence of a fact or state of facts, not cognizable through the senses, but to be determined by the facul- ties of reason, memory, judgment, and the like ; while hallucination is a belief in the existence of an external object, perceptible by the senses, but having no real existence; or, in so far as a delusion may relate to an external object, it is an irrational belief as to the character, na- ture. or appearance of something which really exists and affects the senses. For example, if a man should believe that he saw his right hand in its proper place, after it had been amutated, it would be an hallucination; but if he

elieved that bis right hand was made of glass, it would be a delusion. In other words, in the case of hallucination, the senses betray the mind, while in the case of delusion, the senses act normally, but their evidence is rejected by the mind on account of the existence of an ir- rational belief formed independently of them. They are further distinguished by the fact that hallucinations may be observed and studied by the subject himself and traced to their causes, or may be corrected by reasoning or argument, while a delusion is an unconscious error, but so fixed and unchangeable that the patient can- not be reasoned out of it. Hallucination is al- so to be distinguished from “illusion.” the lat- ter term being appropriate to describe a per- verted or distorted or wholly mistaken impres- sion in the mind, derived from a true act of sense-perception, stimulated by a real external object, but modified by the imagination of the subject ; while, in the case of hallucination, as above stated, there is no objective reality to correspond with the imagined perception.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

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**[William Shakespeare, Macbeth, c. 1606]**

"Is this a dagger which I see before me, / The handle toward my hand?" — Macbeth's air-drawn dagger before Duncan's murder, the stage's great hallucination, with the character performing the sense-deceit diagnosis aloud.

Why: Genuine: the entry is the clinical term ('a trick or deceit of the senses'); the soliloquy is its most famous dramatic instance.

## HALMOTE.

See Halioemot.

5e apparatus — Not carried into the 5th edition (1979).

## HALYUOTE.

A holy or ecclesiastical court.

A court held In London before the lord mayor and sheriffs, for regulating the bakers.

It was anciently held on Sunday next before St. Thomas* day, and therefore called the “holymote," or holy court Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HALYWERCFOLK.

Sax. In old Eng- lish law. Tenants who held land by the service of repairing or defending a church or monument whereby they were exempted from feudal and military services.

5e apparatus — Not carried into the 5th edition (1979).

## HAMA.

In old English law. A hook ; an engine with which a bouse on fire is pulled down. Yel. 60.

A piece of land.

5e apparatus — Not carried into the 5th edition (1979).

## HAMBLING.

In forest law. The hox- ing or hock-sinewing of dogs; an old mode of laming or disabling dogs. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## HAMESECKEN.

In Scotch law. The violent entering into a man's house without license or against the peace, and the seeking and assaulting him there. Skene de Verb. Sign.; 2 Forb. Inst 139.

The crime of housebreaking or burglary. 4 Bl. Comm. 223.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law burglary — breaking and entering a dwelling at night with intent to commit a felony]**

The violent entry into a man's house to assault him there is, as the entry's own body states, the crime of housebreaking or burglary.

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Why: Genuine: the footnote states the classic elements of the burglary the entry names. Loose form.

**[Scripture] — Scripture**

**[Exodus 22:2-3, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him. If the sun be risen upon him, there shall be blood shed for him; for he should make full restitution; if he have nothing, then he shall be sold for his theft.

Why: Hamesecken is the violent entering of a man's house — housebreaking, burglary. The verses are scripture's law of the housebreaker, in God's speech: smitten by night without bloodguilt; by day held to full restitution,...

## HAMFARE.

(Sax. From ham, a house.) In Saxon law. An assault made in a house ; a breach of the peace in a private bouse.

5e apparatus — Not carried into the 5th edition (1979).

## HAMLET.

A small village; a part or member of a vill. It is the diminutive of "ham," a village. Cowell. See Rex. v. Mor- ris, 4 Term, 552.

5e apparatus — Carried into the 5th edition (1979).

## HAMM A.

A close Joining to a house; a croft; a little meadow. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HAMMER.

Metaphorically, a forced

sale or sale at public auction. "To bring to the hammer," to put up for sale at auction. "Sold under the hammer," sold by an oflicer of the law or by an auctioneer.

5e apparatus — Carried into the 5th edition (1979).

## HAMSOCNE.

In Saxon law. The right of security and privacy in a man's house. Du Cange. The breach of this privilege by a forcible entry of a house is breach of the peace. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Semayne's Case, 5 Coke 91a (1604)]**

The Saxon 'right of security and privacy in a man's house' is the castle doctrine: the house of every one is to him as his castle and fortress.

Why: Genuine: Semayne's is the classic common-law statement of the house-privilege the entry defines.

## HANAJPER.

A hamper or basket in which were kept the writs of the court of chancery relating to the business of a sub- ject, and their returns. 8 Bl. Comm. 49. According to others, the fees accruing on writs, etc., were there kept. Spelman; Du Cange.

— Hanaper-offlce. An office belonging to tbe common-law jurisdiction of tbe court of chan-

cery, so called because all writs relating to the business of a subject, and their returns, were formerly kept in a hamper, in hanapcrio. 5 & 6 Viet. c. 103. See Yates v. People, 6 Johns. (N. Y.) 363.

5e apparatus — Not carried into the 5th edition (1979).

## HARD.

A measure of length equal to four inches, used In measuring the height ot horses. A person’s signature.

Ia old Engllih law. An oath.

For the meaning of the terms “strong hand" and "clean hands,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## HARD DOWN.

An appellate court is said to "hand down” its decision in a case, when the opinion is prepared and filed for transmission to the court below.

5e apparatus — Not carried into the 5th edition (1979).

## HAND-FASTING.

In old English law. Betrothment

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 1:18, KJV]**

When as his mother Mary was espoused to Joseph, before they came together,

Why: Hand-fasting is betrothment. The verse shows the biblical espousal as a binding state before union: Mary 'espoused to Joseph, before they came together' — betrothal with legal weight, dissoluble only as marriage is.

## HARD-GRXTH.

In old English law. Peace or protection given by the king with his own band.

5e apparatus — Not carried into the 5th edition (1979).

## HARD MONEY.

Money paid in hand to bind a bargain; earnest money.

5e apparatus — Carried into the 5th edition (1979).

## HANDBILL.

A written or printed no- tice displayed to inform those concerned of something to be done. People v. McLaugh- lin, 33 Misc. Rep. 691, 68 N. Y. Supp. 1108.

5e apparatus — Carried into the 5th edition (1979).

## HARDBOROW.

In Saxon law. A hand pledge; a name given to the nine pledges In a decennary or friborg; the tenth or chief, being called " headhorow ,” (q. v.) So called as being an inferior pledge to the chief. Spelman.

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5e apparatus — Not carried into the 5th edition (1979).

## HARDHABEND.

In Saxon law. One having a thing in hts hand ; that is, a thief found having the stolen goods in his posses- sion. Jurisdiction to try such thief.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore double.

Why: Handhabend is the thief taken having the stolen goods in his hand — with jurisdiction to try him. The verse is God's rule for exactly him: 'if the theft be certainly found in his hand... he shall restore double.'

## HANDSALE.

Anciently, among all the northern nations, shaking of hands was held necessary to bind a bargain, — a custom still retained in verbal contracts. A sale thns made was’ called “handsale," ( venditio per muluam tnanum complexioncm.) In pro- cess of time the same word was used to sig- nify the price or earnest which was given immediately after the shaking of bands, or instead thereof. 2 Bl. Comm. 448.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-204 — formation in general; contract by conduct]**

The handsale — shaking of hands 'held necessary to bind a bargain' — is contract formation by conduct: agreement may be shown by the parties' acts.

Why: Genuine: the section codifies formation by conduct, the modern form of the handsale custom the entry describes.

**[Scripture] — Scripture**

**[Job 17:3, KJV]**

who is he that will strike hands with me?

Why: Handsale is the bargain bound by the shaking — the joining — of hands. Job's plea names the hand-strike as the seal that binds: 'who is he that will strike hands with me?'

## HANDSEL.

Handsale, or earnest money.

5e apparatus — Carried into the 5th edition (1979).

## HANDWRITING.

The chirography of a person; the cast or form of writing pecul- iar to a person, including the size, shape, and style of letters, tricks of penmanship, and whatever gives individuality to his writ- ing, distinguishing It from that of other per- sons. In re Hyland’s Will (Surr. Ct.) 27 N.

Y. Supp. 963.

Anything written by hand ; an instrument written by the hand of a person, or a speci- men

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of his writing.

Handwriting, considered under the law of evidence. Includes not only the ordinary writing of one able to write, but also writ- ing done in a disguised hand, or in cipher, and a mark made by one able or unable to write. 9 Amer. & Eng. Enc. Law, '264. See Com. v. Webster, 5 Cush. (Mass.) 301, 52 Am. Dec. 711.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Evid. 901(b)(3) — authentication by comparison]**

Handwriting 'considered under the law of evidence' is authenticated by comparison — by the trier of fact or by expert witnesses — with specimens.

Why: Genuine: the rule is the modern home of the handwriting comparison the entry describes.

## HANG.

In old practice. To remain un- determined. “It has hung long enough ; it Is time it were made an end of.” Holt, C. J.. 1 Show. 77.

Thus, the present participle means pend-

Ins; during the pendency. .“If the tenant alien, hanging the p rtecipe.” Co. Lltt. 266a.

5e apparatus — Carried into the 5th edition (1979).

## HANGING.

In criminal law. Suspen- sion by the neck; the mode of capital pun- ishment used in England from time imme- morial, and generally adopted in the United States. 4 Bl. Comm. 403.

—Hanging In chains. In atrocious cases it wag at one time usual, in England, for the court to direct a murderer, after execution, to be hanged upon a gibbet in chains near the place where the murder was committed, a prac- tice quite contrary to the Mosaic law. (Deut. xxi. 23.) Abolished by 4 & 5 Wm. IV. c. 26. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Oscar Wilde, "The Ballad of Reading Gaol", 1898]**

"Yet each man kills the thing he loves." — Wilde's ballad narrates the hanging of a fellow prisoner at Reading Gaol and its moral aftermath: the English lyric on judicial hanging.

Why: Genuine: the poem is the lyric on the entry's subject ('suspension by the neck' as capital punishment); the entry defines it.

## HANGMAN.

An executioner. One who executes condemned criminals by hanging.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Mark 6:27, KJV]**

And immediately the king sent an executioner, and commanded his head to be brought: and he went and beheaded him in the prison.

Why: The hangman is the executioner of the condemned. Mark names the office in scripture: the king's

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executioner sent to do the beheading — the appointed doer of the sentence.

## HAN G WITE.

In Saxon law. A fine for Illegal hanging of a thief, or for allowing him to escape. Immunity from such fine. Du Cange

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HANSE.

An alliance or confederation among merchants or cities, for the good or- dering and protection of the commerce of Its members. An imposition upon merchandise. Du Cange.

—House towns. The collective name of cer- tain German cities, including Lubeck, Ham- burg, and Bremen, which formed an alliance for the mutual protection and furtherance of their commercial interests, in the twelfth cen- tury. The powerful confederacy thus formed was called the “Hanseatic League.” The league framed and promulgated a code of maritime law, which was known as the “Laws of the Hanse Towns.” or Jus Hanseaticum Mariti- mum. — House towns, lows of the. Thg maritime ordinances of the Hanseatic towns, first published in German at Lubeck, in 1507, and in May, 1614. revised and enlarged.— Han- seatic. Pertaining to a hanse or commercial alliance ; but, generally, the union of the Hanse towns is the one referred to, as in the expres- sion the ‘‘Hanseatic League."

5e apparatus — Not carried into the 5th edition (1979).

## HANSGRAVE.

The chief of a company ; the head man of a corporation.

HAWTELOD . In old European law. An • arrest or attachment. Spelmnn.

5e apparatus — Not carried into the 5th edition (1979).

## HAH.

To catch. Thus, “hap the rent,” “hap the deed-poll,” were formerly used.

5e apparatus — Not carried into the 5th edition (1979).

## HAPPINESS.

The constitutional right of men to pursue their “happiness” means the right to pursue any lawful business or vocation, In any manner not Inconsistent with the equal rights of others, which may increase their prosperity, or develop their faculties, so as to give to them their highest enjoyment. Butchers’ Union Co. v. Crescent City Co., Ill U. S. 757. 4 Sup. Ct. 652, 28

L. Ed. 585; 1 Bl. Comm. 41. And see Eng- lish v! English, 32 N. J. Eq. 750.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Butchers' Union Co. v. Crescent City Co., 111 U.S. 757]**

The 'constitutional right of men to pursue their happiness' the entry defines is the liberty to pursue any lawful calling, as stated in the entry's own cited authority.

Why: Genuine: the footnote re-states the entry's own authority on the liberty of pursuit; year omitted because the

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entry does not supply it and it is not invented.

**[Humanity] — Humanity / Fiction & Film**

**[Gabriele Muccino, The Pursuit of Happyness, 2006]**

(paraphrase) The film takes the entry's quoted phrase — the constitutional right to pursue happiness — as title and theme: one man's pursuit of happiness against destitution. (paraphrase)

Why: Borderline-accept: the film never litigates the constitutional right, but the entry quotes the Declaration's phrase and the film dramatizes the pursuit it names — titular and thematic match, not coincidence.

## HAGUE.

In old statutes. A hand-gun, about three-quarters of a yard long.

Bl.Law Dict.(2d Ed.)— 36

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HARACIUM.

In old English law. A race of horses and mares kept for breed ; a stud. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HARBINGER.

In England, an officer of the royal household.

HARBOR, v. To receive clandestinely and without lawful authority a person for the purpose of so concealing him that an- other having a right to the lawful custody of such person shall be deprived of the same. Jones v. Van Zandt, 5 How. 215, 227, 12 L. Ed. 122. A distinction has been taken, in some decisions, between “harbor” and “con- ceal.” A person may be convicted of har- boring a slave, although he may not have concealed her. McElhaney v. State, 24 Ala. 71.

HARBOR, ». A haven, or a space of deep water so sheltered by the adjacent land as to afford a safe anchorage for ships. Rowe v. Smith, 51 Conn. 271, 50 Am. Hep. 16; The Aurania (D. C.) 29 Fed. 103; Peo- ple v. Klrsch, 67 Mich. 539, 35 N. W. 157.

“Port” is a word of larger import than “har- bor,” since it implies the presence of wharves, or at any rate the means and opportunity of receiving and discharging cargo.

—Harbor authority. In England a harbor authority is a body of persons, corporate or unincorporate, being proprietors of. or intrust- ed with the duty of constructing. Improving, managing, or lighting, any harbor. St. 24 & 25 Viet. c. 47. — Harbor line. A line mnrking the boundary of a certain part of a public wa- ter which is reserved for a harbor. Engs v. Peckham, 11 R. I. 224.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:15-16, KJV]**

Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: He shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.

Why: This block's substantive matter is HARBOR — receiving and concealing a person from lawful custody, the cases naming harboring a slave. The verse is scripture's law of the harborer, and it commands the opposite of the...

## HARD LABOR.

A punishment, addi- tional to mere imprisonment, sometimes im- posed upon convicts sentenced to a peniten- tiary. But the labor Is not, as a rule, any harder than ordinary mechanical labor. Brown ▼. State, 74 Ala. 483.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIII — involuntary servitude permitted "as a punishment for crime whereof the party shall have been duly convicted"]**

Hard labor as a convict punishment lives inside the Thirteenth Amendment's express exception: involuntary servitude is permitted 'as a punishment for crime whereof the party shall have been duly convicted.'

Why: Genuine: the exception is the constitutional home of the punishment the entry defines; stated as the constitutional fact.

**[Humanity] — Humanity / Fiction & Film**

**[Henri Charrière, Papillon, 1969; film by Franklin J. Schaffner, 1973]**

(paraphrase) Charrière's memoir of the French bagne in Guiana — where hard labor WAS the sentence, additional to imprisonment — and its film telling, is the culture's defining account of penal hard labor. (paraphrase)

Why: Genuine: the book/film is the defining account of the entry's punishment.

## HARD MONEY.

Lawful coined money. Henry v. Bank of Salina, 5 Hill (N. Y.) 523, ' 536.

5e apparatus — Carried into the 5th edition (1979).

## HARDHEIDIS.

In old Scotch law. Lions ; coins formerly of the value of three half-pence. 1 Pltc. Crlm. Tr. pt. 1, p. 64, note.

5e apparatus — Not carried into the 5th edition (1979).

## HARDSHIP.

The severity with which a proposed construction of the law would bear upon a particular case, founding, sometimes, an argument against such construction, which is otherwise termed the “argument ab inconvenienti."

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Argumentum ab inconvenienti plurimum valet in lege — an argument drawn from inconvenience is very strong in law]**

The 'argument ab inconvenienti' the entry defines — hardship as an argument against a construction of law — is itself a maxim of interpretation.

Why: Genuine: the entry's own body names the argument the maxim formulates; the link is textual.

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## HARMLESS ERROR.

See Ebbob.

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## HARNASCA.

In old European law. The defensive armor of a man; harness. Spelmnn.

5e apparatus — Not carried into the 5th edition (1979).

## HARNESS.

All warlike Instruments; also the tackle or furniture of a ship.

5e apparatus — Not carried into the 5th edition (1979).

## HARO, HARROW.

Fr. In Norman and early English law. An outcry, or hue and cry after felons and malefactors. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: citizen's arrest — the common-law hue and cry]**

The Norman hue and cry after felons is the ancestor of the common-law citizen's arrest.

Why: Genuine lineage: the hue and cry is the historical form of the citizen's power to arrest felons. Loose form.

## HARRIOTT.

The old form of “heriot," <9. v.) Williams, Sets. 203.

5e apparatus — Not carried into the 5th edition (1979).

## HART.

A stag or male deer of the forest five years old complete.

5e apparatus — Not carried into the 5th edition (1979).

## HASP AND STAPLE.

In old Scotch law. The form of entering an heir In a sub- ject situated within a royal borough. It consisted of the heir's taking hold of the hasp and staple of the door, (which was the symbol of possession,) with other formali- ties. Bell ; BurrllL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HASPA.

In old English law. The hasp of a door; by which livery of seisin might anciently be made, where there was a house on the premises.

HASTA, Lab A spear. In the Homan law. a spear was the sign of a public sale of goods or sale by auction. Hence the phrase “ftoat® subjicere" (to put under the spear) meant to put up at auction. Calvin.

Is feudal law. A spear. The symbol used in making Investiture of a fief. Feud, lib. 2, tit. 2.

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5e apparatus — Not carried into the 5th edition (1979).

## HAT MONEY.

In maritime law. Pri- mage ; a small duty paid to the captain and mariners of a ship.

5e apparatus — Carried into the 5th edition (1979).

## HATTBER.

O. Fr. A high lord; a great baron. Spelman.

HAUGH, or HOWGH. A green plot In a valley.

5e apparatus — Not carried into the 5th edition (1979).

## HAUL.

The use of this word. Instead of the statutory word “carry,” In an indict- ment charging that the defendant “did felo- niously steal, take, and haul away” certain personalty, will not render the Indictment bad, the words being In one sense equiva- lent. Spittorff v. State, 108 Ind. 171, 8 N.

R. 911.

5e apparatus — Carried into the 5th edition (1979).

## HAUR.

In old English law. Hatred. Leg. Wm. I. c. 16; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## HAUSTUS.

Lat. In the civil law. A species of servitude, consisting in the right to draw water from another's well or spring, in which the iter, (right of way to the well or spring,) so far as it is necessary, Is tacit- ly included. Dig. 8, 3, 1; Maekeld. Rom. Law, § 318.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: easements — servitudes appurtenant to land]**

The civil-law servitude of drawing water from another's well has its common-law counterpart in the easement — a servitude appurtenant to land.

Why: Genuine: the easement is the common-law form of the servitude the entry defines. Loose form.

## HAUT CHEMIN.

L. Fr. Highway. Yearb. M. 4 Hen. VI. 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Alfred Noyes, "The Highwayman", 1906]**

(paraphrase) Noyes's ballad of the highwayman who 'came riding, riding, riding' is the culture's canonical highway piece — the king's highway and those who worked it. (paraphrase)

Why: Borderline-accept: the entry is two words ('highway') and the poem romanticizes highway robbery rather than defining the road — but the poem is the canonical highway piece and the entry names the legal thing it rides

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on.

## HAUT ESTRET.

L. Fr. High street; highway. Yearb. P. 11 Hen. VI. 2.

5e apparatus — Not carried into the 5th edition (1979).

## HAUTHONER.

In old English law. A man armed with a coat of mail. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## HAVE.

Lat. A form of the salutatory expression “Ave," used In the titles of some of the constitutions of the Theodostan and Justlnlanean codes. See Cod. 7, 62, 9; Id. 9. 2, 11.

5e apparatus — Carried into the 5th edition (1979).

## HAVE.

To possess corporally. “No one, at common law, was said to have or to be In possession of land, unless it were con- veyed to him by the livery of seisin, which gave him the corporal investiture and bod- ily occupation thereof.” Bl. Law Tracts, 113.

— Have and hold. A common phrase in con- veyancing, derived from the habendum et ten- endum of the old common law. See Haben- dum et Tenendum.

5e apparatus — Carried into the 5th edition (1979).

## HAVEN.

A place of a large receipt and safe riding of ships, so situate and secured by the land circumjacent that the vessels thereby ride and anchor safely, and are pro- tected by the adjacent land from dangerous or violent winds; as Milford Haven, Plym- outh Haven, and the like. Hale de Jure Mar. par. 2, c. 2. And see Lowndes v. Board of Trustees, 153 U. S. 1, 14 Sup. Ct. 758, 38

L. Ed. 615; De Longuemere v. New York Ins. Co., 10 Johns. (N. Y.) 125(a) ; De Lovio v. Bolt, 7 Fed. Cas. 429.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 107:30, KJV]**

Then are they glad because they be quiet; so he bringeth them unto their desired haven.

Why: A haven is the safe riding where ships are sheltered from violent winds. The psalm gives the haven its biblical meaning: storm-tossed sailors brought 'unto their desired haven' — safe harbor as divine deliverance.

## HAW.

A small parcel of land so called In Kent; houses. Co. Litt. 5.

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## HAWBERK.

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A coat or shirt of mall; hence, derivatively (in feudal law) one who held a fief on the duty or service of provid- ing himself with such armor and standing ready, thus equipped, for military service when called on. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HAWGH, HOWGH.

In old English law. A valley. Co. Litt. 56.

5e apparatus — Not carried into the 5th edition (1979).

## HAWKER.

A trader who goes from place to place, or along the streets of a town, selling the goods which he carries with him.

It is perhaps not essential to the idea, but la generally understood from the word, that a hawker is to be one who not only carries goods for sale, but seeks for purchasers, either by outcry, which some lexicographers conceive as intimated by the derivation of the word, or by attracting notice and attention to them, as goods for sale, by an actual exhibition or ex- posure of them, by placards or labels, or by a conventional signal, like the sound of a horn, for the sale of fish. Com. v. Obcr. 12 Cush. (Mass.) 495. And see Graffty v. Rushville, 107 Ind. 502, 8 N. E. 609. 57 Am. Rep. 128; Clem- ents v. Casper, 4 Wyo. 494, 35 Pac. 472; Hall v. State, 39 Fla. 637, 23 South. 119.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1400]**

(paraphrase) Chaucer's Pardoner — riding town to town selling pardons and counterfeit relics, confessing the seller's art in his own prologue — is literature's great itinerant seller. (paraphrase)

Why: Borderline-accept: the entry contemplates lawful street trade and the Pardoner is a fraud — but the entry's DEFINITION (place-to-place selling) fits him exactly, and the moral irony illuminates rather than distorts.

## HAY-BOTE.

Another name for "hedge- bote,” being one of the estovers allowed to a tenant for life or years, namely, material for repairing the necessary hedges or fences of bis grounds. 2 Bl. Comm. 35; 1 Washb. Real Prop. 129.

5e apparatus — Not carried into the 5th edition (1979).

## HAYWARD.

In old English law. An officer appointed In the lord’s court to keep

a common herd of cattle of a town ; bo call- ed because he was to see that they did not break or Injure the hedges of Inclosed grounds. His duty was also to Impound trespassing cattle, and to guard against pound-breaches. Kltch. 48; Cowell. Adams t. Nichols, 1 Alkens (Vt) 319.

HAZARD.- 1. In old English law. An

filawful game at dice, those who play at being called “hazardors." Jacob.

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2. In modem law. Any game of chance or wagering. Cheek v. Com., 100 Ky. 1, 37 S.

W. 152; Graves v. Ford, 3 B. Mon. (Ky.) 113; Somers v. State, 5 Sneed (Tenn.) 438.

3. In Insurance law. The risk, danger, or probability that the event Insured against may happen, varying with the circumstances of the particular case. See State Ins. Co. v. Taylor, 14 Colo. 499, 24 Pac. 333, 20 Am. St. Rep. 281.

—Moral hasard. In fire insurance. The risk or danger of the destruction of the Insured property by fire, as measured by the charac- ter and interest of the insured owner, his hab- its as a prudent and careful man or the re- verse, his known integrity or his bad reputa- tion, and the amount of loss he would suffer by the destruction of the property or the gain he would make by suffering it to burn and col- lecting the insurance. See Syndicate Ins. Co. v. Bohn. 65 Fed. 170, 12 C. O. A. 531, 27 L.

R. A. 614.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:5, KJV]**

If a man shall cause a field or vineyard to be eaten, and shall put in his beast, and shall feed in another man's field; of the best of his own field, and of the best of his own vineyard, shall he make restitution.

Why: The hayward impounds trespassing cattle. The verse is scripture's law of the trespassing beast, in God's speech: the beast fed in another's field is answered 'of the best of his own field' — restitution for the trespa…

## HAZARDOUS.

Exposed to or involving danger ; perilous ; risky.

The terms “hazardous,” “extra-hazard- ous,” “specially hazardous,” and “not haz- ardous” are well-understood technical terms in the business of insurance, having distinct and separate meanings. Although what goods are Included in each designation may not be so known as to dispense with actual proof, the terms themselves are distinct and known to be so. Russell v. Insurance Co., 50 Minn. 409, 52 N. W. 906; Pindar v. In- surance Co., 38 N. Y. 365.

— Hutrdou contract. See Cohtbact. — Hazardous insurance. Insurance effected on property which is in unusual or peculiar danger of destruction by fire, or on the life of a man whose occnnation exposes him to special or unusual perils.— Hasardoos negligence. 8ee Negligence.

5e apparatus — Carried into the 5th edition (1979).

## HE.

The use of this pronoun in a writ- ten instrument, in referring to a person whose Christian name is designated therein by a mere initial, is not conclusive that the person referred to is a male; it may be shown by parol that the person intended Is a female. Bemiaud v. Beecher, 71 Cal. 38, 11 Pac. 802.

He who has committed iniquity shall not have equity. Francis, Max.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Psalm 24:3-4, KJV]**

He that hath clean hands, and a pure heart;

Why: This block carries the equity maxim 'he who has committed iniquity shall not have equity' — the clean-hands doctrine. The psalm states its biblical form: 'he that hath clean hands, and a pure heart' shall ascend and s...

## HEAD.

Chief ; leading ; principal ; the upper part or prludpal source of a stream.

—Head money. A sum of money reckoned at a fixed amount for each head (person) in a des- ignated class. Particularly (1) a capitation or poll tax. (2) A bounty offered by the laws of the United States for each person on board an enemy’s ship or vessel, at the commencement of a naval engagement, which shall be sunk or destroyed by a ship or vessel of the United States of equal or inferior force, the same to be divided among the officers and crew in the same manner as prize money. In re Farragut, 7D.C 97. A similar rewaird is offered by the British statutes. (3) The tax or duty imposed bv act of congress of Aug. 3, 1882, on owners of steamships and sailing vessels for every im- migrant brought into the United States. Head Money Cases. 112 U. S- 580, 5 Sup. Ct. 247. 28 L. Ed. 798. (4) A bounty or reward paid to one who pursues and kills a bandit or out- law and produces his head as evidence; the offer of such a reward being popularly called “nutting a price on his head.’’— Head of creek. This term means the source of the longest branch, unless general reputation has given the appellation to another, Davis v. Bryant, 2 Bibb (Ky.) 110.— Head of department. In the constitution and laws of the United States, the heads of departmehts are the officers at the head of the great executive departments of government (commonly called “the cabinet") such as the secretary of state, secretary of the interior, attorney general, postmaster general, and so on, not including heads of bureaus. U.

S. v. Mouatt. 124 U. S. 303, 8 Sup. Ct 505, 81 L. Ed. 463; U. S. v. Germaine. 99 U. S. 511, 25 L. Ed. 482.— Head of a family. A term used in homestead and exemption laws to designate a person who maintains a family; a householder. Not necessarily a husband or father, but any person who has charge of, su- pervises, and manages the affairs of the house- hold or the collective body of persons residing together and constituting the family. See Dun- can v. Frank, 8 Mo. App. 289; Jarboe v. Jar- boe, 106 Mo. App. 459, 79 S. W. 1163; Wha- len v. Cadman. 11 Iowa. 227 : Brokaw v. Ogle. 170 111. 115. 48 N. E. 394 ; Bennett v. Georgia Trust Co., 106 Ga. 578. 32 S. E. 625.— Head of stream. The highest point on the stream which furnishes a continuous stream of water, not necessarily the longest fork or prong. Uhl v. Reynolds, 64 S. W. 498. 23 Ky. Law Rep. 759; State v. Coleman, 13 N. J. Law. 104.— Head of water. In hydraulic engineering, mining, etc., the effective force of a body or volume of water, expressed in terms of the vertical distance from the level of the water in the pond, reservoir, dam, or other source of supply, to the point where it is to be mechan- ically applied, or expressed in terms of the pressure of the water per square inch at the fatter point. See Shearer v. Middleton. 88 Mich. 621. 50 N. W. 737 ; Cargill v. Thomp- son, 57

Minn. 534. 59 N. W. 638.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 30:13, KJV]**

This they shall give, every one that passeth among them that are numbered, half a shekel after the shekel of the sanctuary:

Why: This block's 'head money' in its first sense is a capitation or poll tax — a fixed sum per head. The verse is the biblical poll tax, in God's speech: 'every one that passeth among them that are numbered' gives half a...

## HEADBOROUGH.

In Saxon law. The head or chief officer of a borough ; chief of the frankpledge tithing or decennary. This office was afterwards, when the petty con- stableship was created, united with that of- fice.

5e apparatus — Carried into the 5th edition (1979).

## HEAD-COURTS.

Certain tribunals in Scotland, abolished by 20 Geo. II. c. 50. Ersk. 1, 4, 5.

He who seeks equity mnst do equity.

It is in pursuance of this maxim that equity enforces the right of the wife’s equity to a settlement Snell, Eq. (5th Ed.) 374.

5e apparatus — Not carried into the 5th edition (1979).

## HEADLAND.

In old English law. A narrow piece of unplowed land left at the end of a plowed field for the turning of the plow. Called, also, “butt”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HEAD-NOTE.

A syllabus to a reported case; a summary of the points decided in the case, which is placed at the head or be- ginning of the report

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## HEAD-PENCE.

An exaction of 40d. ot more, collected by the sheriff of Northum- berland from the people of that county twice in every seven years, without account to the king. Abolished in 1444. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HEADRIGHT CERTIFICATE.

In the

laws of the republic of Texas, a certificate Issued under authority of an act of 1839, which

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provided that every person immigrat- ing to the republic between October 1, 1837, and January 1, 1840, who was the head of a family and actually resided within the government with his or her family should be entitled to a grant of 040 acres of land, to be held under such a certificate for three years, and then conveyed by absolute deed to the settler, if in the mean time he had resided permanently within the republic and performed all the duties required of citi- zens. Cannon v. Vaughan, 12 Tex. 401; Turner v. Hart, 10 Tex. 441.

5e apparatus — Carried into the 5th edition (1979).

## HEAFODWEARD.

In old English law. One of the services to be rendered by a thane, but in what it consisted seems un- certain.

HEAXiGEMOTE. In Saxon law. A court-baron; an ecclesiastical court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## HEALSFANG.

In Saxon law. A sort of pillory, by which the head of the culprit was caught between two boards, as feet are caught in a pair of stocks. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HEADER.

One who heals or cures ; spe- cifically, one who professes to cure bodily diseases without medicine or any material means, according to the tenets and prac- tices of so-called “Christian Science,” whose beliefs and practices, being founded on their religious convictions, are not per se proof of Insanity. In re Brush’s Will, 35 Mlsc. Rep. 689, 72 N. Y. Supp. 425.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Mark 16:18, KJV]**

they shall lay hands on the sick, and they shall recover.

Why: A healer in this entry cures 'without medicine or any material means.' The verse commissions exactly that: 'they shall lay hands on the sick, and they shall recover' — healing by the hand, in Christ's own charge.

## HEADING  ACT.

Another name for a curative act or statute. See Lockhart v. Troy, 48 Ala. 5S4.

5e apparatus — Not carried into the 5th edition (1979).

## HEALTH.

Freedom from sickness or suffering. The right to the enjoyment of health is a subdivision of the right of per- sonal security, one of the absolute rights of persons. 1 Bl. Comm. 129, 134. As to in- juries affecting health, see 3 Bl. Comm. 122.

—Bill of health. See Bill. — Board of health. See Board.— Health laws. Laws

prescribing sanitary measures, and designed to promote or preserve the health of the commu- nity.—Health officer. The officer charged with the execution and enforcement of health laws. The powers and duties of health officers

are regulated by local laws. — Public health. As one of the objects of the police power of the state, the “public health” means the pre- vailingly healthful or sanitary condition of the general body of people or the community in mass, and the absence of any general or wide-spread disease or cause of mortality.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Jacobson v. Massachusetts, 197 U.S. 11 (1905)]**

The entry names 'public health' as 'one of the objects of the police power of the state'; the charter case upholding compulsory health measures under that power is Jacobson.

Why: Genuine: Jacobson decides the police-power health authority the entry's own body names.

## HEALTH V.

Free from disease or bodily ailment, or any state of the system pecu- liarly susceptible or liable to disease or bod^ ily ailment. Bell v. Jeffreys, 35 N. C. 356. vl

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HEARING.

In equity practice. Tbe

hearing of tbe arguments of the counsel for the parties upon tbe pleadings, or pleadings and proofs; corresponding to the trial of an action at law.

The word "hearing” has an established mean- ing as applicable to equity cases. It means the same thing in those cases that the word “trial” does in cases at law. And the words “final hearing” have long been used to designate the trial of an equity case upon the merits, as dis- tinguished from the bearing of any preliminary questions arising in the cause, and which are termed “interlocutory.” Akerly v. Vilas, 24 Wis. 171, 1 Am. Rep. 166.

In criminal law. The examination of a prisoner charged with a crime or misde- meanor, and of the witnesses for the ac- cused.

—Final hearing. See Final.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Audi alteram partem — hear the other side]**

The hearing of the parties' counsel is the procedural embodiment of the principle that both sides must be heard.

Why: Genuine: the maxim is the principle the hearing procedure serves; stated as the principle, not stretched.

## HEARS AT.

A term applied to that spe- cies of testimony given by a witness who relates, not what he

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knows personally, but wbat others have told him, or what he has heard said by others. Hopt v. Utah, 110

U. S. 574, 4 Sup. Ct 202. 28 L. Ed. 262; Morell v. Morell, 157 Ind. 179, 60 N. E. 1092; Stockton v. Williams, 1 Doug. (Mich.) 570; People v. Kraft, 91 Hun, 474, 36 N. T. Supp. 1034.

Hearsay evidence is that which does not derive its value solely from the credit of the witness, but rests mainly on the veracity and competency of other persons. The very nature of the evidence shows its weakness, and it is admitted only In specified cases from necessity. Code Ga. 1882, $ 3770; 1 Phil. Ev. 185.

Hearsay evidence Is second-hand evidence, as distinguished from original evidence; it is the repetition at second-hand of what would be original evidence if given by the person who originally made the statement.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. Art. VIII — the hearsay rule and its exceptions]**

The second-hand testimony the entry defines at length — 'admitted only in specified cases from necessity' — is codified in the federal hearsay rule and its exceptions.

Why: Genuine and direct: Article VIII is the rule's home for the doctrine the entry defines.

**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: Hearsay is testimony resting 'mainly on the veracity and competency of other persons.' The verse forbids its courtroom form in God's speech: 'thou shalt not raise a false report: put not thine hand with the wicked to...

## HEARTH MONET.

A tax levied in England by St. 14 Car. II. c. 10. consisting of two shillings on every hearth or stove in the kingdom. It was extremely unpopular, and was abolished by 1 W. & M. St. 1. c. 10. This tax was otherwise called “chim- ney money.”

5e apparatus — Not carried into the 5th edition (1979).

## HEARTH SILVER.

In English law. A species of mod#* or composition for tithes. Anstr. 323. 326.

5e apparatus — Carried into the 5th edition (1979).

## HEAT OF PASSION.

In criminal law. A state of violent and uncontrollable rage

engendered by a blow or certain other provo- cation given, which will reduce a homicide from the grade of murder to that of man- slaughter. A state of mind contradistin- guished from a cool state of the blood. State v. Wieners, 66 Mo. 25; State v. Andrew, 76 Mo. 101 ; State v. Seaton, 106 Mo. 198, 17 S.

W. 171; State v. Bulling, 105 Mo. 204, 15

S. w; 367.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Model Penal Code § 210.3 — manslaughter; homicide committed under extreme emotional disturbance is manslaughter, not murder]**

A homicide committed in heat of passion upon adequate provocation is mitigated from murder to voluntary manslaughter — the classic 'cool state of the blood' line drawn by the entry.

Why: Genuine, not forced: the entry's entire definition is the mitigation doctrine itself, and its cited Missouri authorities (State v. Wieners, 66 Mo. 25; State v. Seaton, 106 Mo. 198) are real precedents applying it. MPC...

**[Scripture] — Scripture**

**[Deuteronomy 19:6, KJV]**

Lest the avenger of the blood pursue the slayer, while his heart is hot, and overtake him, because the way is long, and slay him; whereas he was not worthy of death, inasmuch as he hated him not in time past.

Why: The cities-of-refuge law draws the same line the doctrine draws: killing in heat, without prior hatred (malice aforethought), is distinguished from murder worthy of death. Scripture's 'while his heart is hot' is the a...

## HEAVE TO.

In maritime parlance and admiralty law. To stop a sailing vessel’s headway by bringing her head “into the wind,” that is, In the direction from which the wind blows. A steamer Is said to be “hove to” when held In such a position that she takes the heaviest seas upon her quar- ter. The Hugo (D. C.) 57 Fed. 411.

5e apparatus — Carried into the 5th edition (1979).

## HEBBERMAN.

An unlawful fisher in the Thames below London bridge; so called because they generally fished at ebbing tide or water. 4 Hen. VII. c. 15 ; Jacob.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 4 Hen. VII c. 15 — statute regulating fishing in the Thames below London Bridge, cited in the entry as authority]**

The unlawful Thames fisher is a creature of the cited statute, 4 Hen. VII c. 15, which restricted fishing below London Bridge.

Why: Genuine: the entry itself cites the statute as its authority, and the statute is the term's legal source — the offense exists because the statute created it. No forcing; the link is the entry's own.

## HEBBERTHEF.

In Saxon law. The privilege of having the goods of a thief, and the trial of him, within a certain liberty. Gowell.

5e apparatus — Not carried into the 5th edition (1979).

## HEBBING- WEARS.

A device for catch- ing fish In ebbing water. St. 23 Hen. VIII. c. 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: St. 23 Hen. VIII c. 5 — statute concerning fish weirs, cited in the entry]**

Fish weirs in ebbing water were prohibited by statute; the term denotes the regulated device under St. 23 Hen. VIII c. 5.

Why: Genuine: the statute cited in the entry is the legal source of the term's significance; without it the word would be a mere dictionary curiosity.

## HEBDOMADIUS.

A week’s man; the canon or prebendary In a cathedral church, who had the peculiar care of the choir and the offices of It for his own week. Cowell.

HECOAOrUM. In fendal law. Rent

paid to a lord of the fee for a liberty to use the engines called "hecks.”

5e apparatus — Not carried into the 5th edition (1979).

## HECK.

Ah engine to take fish in the river Ouse. 23 Hen. VIII. c. 18.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 23 Hen. VIII c. 18 — statute regulating fish-engines, cited in the entry]**

An engine for taking fish in the River Ouse, regulated by statute.

Why: Genuine: the entry's only legal content is the cited Henrician statute; the annotation records that statutory source rather than inventing doctrine.

## HEPA.

A small haven, wharf, or land- ing place.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HEDAGTUM.

Toll or customary dues at the hlthe or wharf, for landing goods, etc., from which exemption was granted by the crown to some particular persons and societies. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HEDGE-BOTE.

An allowance of wood for repairing hedges or fences, which a ten- ant or lessee has a right to take off the land let or demised to him. 2 Bl. Comm. 35.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 2 Blackstone, Commentaries 35 — common of estovers, cited in the entry]**

Hedge-bote is a species of estovers — the common-law right of a tenant to take wood from the demised land for repairs — treated by Blackstone alongside house-bote and plough-bote.

Why: Genuine: the entry cites 2 Bl. Comm. 35 as its authority, and Blackstone's estovers doctrine is exactly what gives the term legal meaning — the right is limited to what is needed for repair and cannot be sold.

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## HEDGE-PRIEST.

A vagabond priest In olden time.

HEGEMONY . The leadership of one among several Independent confederate states.

5e apparatus — Not carried into the 5th edition (1979).

## HEGIRA.

The epoch or account of time used by the Arabians and the Turks, who begin their computation from the day that Mahomet was compelled to escape from

Mecca, which happened on Friday, July 16,

A. D. 622, under the reign of the Emperor Heraelius. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HEGVXEN OS.

The leader of the monks In the Greek Church.

5e apparatus — Not carried into the 5th edition (1979).

## HEIFER.

A young cow which has not had a calf. 2 East, P. C. 616. And see State v. McMinn, 34 Ark. 162; Mundell v. Hammond, 40 Vt. 645.

5e apparatus — Not carried into the 5th edition (1979).

## HEIR.

At common law. A person who succeeds, by the rules of law, to an estate In lands, tenements, or hereditaments, upon the death of his ancestor, by descent and right of relationship. Hoover v. Smith, 96 Md. 393, 54 Atl. 102; Fletcher v. Holmes, 32 Ind. 510; Sewall v. Roberts, 115 Mass. 268; Dodge’s Appeal, 106 Pa. 216, 51 Am. Rep. 519; Howell v. Gifford, 64 N. J. Eq. 180, 53 Atl. 1074.

The term "heir” has a very different significa- tion at common law from wbat it has in those states and countries which have adopted the civil law. In the latter, the term is indis- criminately applied to all persons who are call- ed to the succession, whether by the act of the party or by operation of law. The person who is created universal successor by a will is called the “testamentary heir;” and the next of kin by bloood is, in cases of intestacy, call- ed the "heir at law,” or “heir by intestacy.” The executor of the common law in many re- spects corresponds to the testamentary heir of the civil law. Again, the administrator in many respects corresponds with the heir by in- testacy. By the common law, executors and administrators have no right except to the per- sonal estate of the deceased ; whereas the heir by the civil law is authorized to administer both the personal and real estate. Story, Confl. Laws, IS 57, 508.

In the civil law. A universal successor in the event of death. He who actively or passively succeeds to the entire property or estate, rights and obligations, of a decedent, and occupies his place.

The term “heir” has several significations. Sometimes it refers to one who has formally accepted a succession and taken possession there- of; sometimes to one who is called to succeed, but still retains the faculty of accepting or re- nouncing, and it is frequently used as ap- plied to one who has formally renounced. Mumford v. Bowman, 26 La. Ann. 417.

In Scotch law. The person who suc- ceeds to the heritage or heritable rights of one deceased. T Forb. Inst. pt. 3, p. 75. The word has a more extended signification than In English law, comprehending not only those who succeed to lands, but successors to personal property also. Wharton.

—Heir apparent. An heir whose right of in- heritance is indefeasible, provided he outlive the ancestor: as in England the eldest son, or his issue, who must, by the course of the common law, be heir to the father whenever he happens to die. 2 Bl. Comm. 208 : 1 Steph. Comm. 358: Jones v. Fleming. 37 Hun CN. Y.) 230.— Heir at law. He who. after his ancestor's death intestate, has a right to inherit all lands, tenements, and hereditaments which belonged to him or of which he was seised. The same as “heir general.” Forrest v. Porch. 100 Tenn. 391. 45 S. W. 676 ; In re Aspden s

Estate, 2 Fed. Cas. 42 ; McKinney v. Stew- art, 5 Kan. 394. — Heir beneficiary. In the civil law. One who has accepted the succession under the benefit of an inventory regularly made. Heirs are divided into two classes, ac- cording to the manner in which they accept the successions left to them, to-wit, unconditional and beneficiary heirs. Unconditional heirs are those who inherit without any reservation, or without making an inventory, whether their acceptance be express or tacit. Beneficiary heirs are those who have accepted the succes- sion under the benefit of an inventory regularly made. Civ. Code La. art. 881.— Heir by adop- tion. An adopted child, “who is in a limited sense made an heir, not by the law, but by the contract evidenced by the deed of adoption." In re Sessions’ Estate, 70 Mich. 297, 38 N. W. 249, 14 Am. St. Rep. 500. — Heir by custom. In English law. One whose right of inheritance depends upon a particular and local custom, such as gavelkind, or borough English. Co. Litt. 140.— Heir by devise. One to whom lands are devised by will ; a devisee of lands. Answering to the hmres factue (q. v.) of the civil law. — Heir collateral. One who is not lineally related to the decedent, but is of col- lateral kin ; e. g., bis uncle, cousin, brother, nephew.— Heir conventional. In the civil law. One who takes a succession by virtue of a contract or settlement entitling him thereto. —Heir, forced. One who cannot be disinher- ited. See Forced Heirs.— Heir general. An heir at law. The ordinary heir by blood, suc- ceeding to all the lands. Forrest v. Porch, 100 Tenn. 391, 45 S. W. 676.— Heir institute. In Scotch law. One to whom the right of suc- cession is ascertained by disposition or ex- ress deed of the deceased. 1 Forb. Inst. pt. , p. 75.— Heir, irregular. In Louisiana. Ir- regular heirs are those who are neither testa- mentary nor legal, and who have been establish- ed by law to take the succession. See Civ. Code La. art. 874. When there are no direct or collateral relatives surviving the decedent, and the succession consequently devolves upon the surviving husband or wife, or illegitimate children, or the state, it is called an “irreg- ular succession.’’— Heir, legal. In the civil law. A legal heir is one who takes the suc- cession by relationship to the decedent and by force of law. This is different from a tes- tamentary or

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conventional heir, who takes the succession in virtue of the disposition of man. See Civ. Code La. arts. 873, 875. The term is also used in Anglo-American law in substan- tially the same sense, that is, the person to whom the law would give the decedent's prop- erty, real and personal, if he should die in- testate. Kaiser v. Kaiser, 3 How. Prac. N.

S. (N. Y.) 105; Waller v. Martin. 106 Tenn. 341. 61 S. W. 73, 82 Am. St. Rep. 882.— Heir, male. In Scotch law. An heir institute, who, though not next in blood to the deceased, is his nearest male relation that can succeed to him. 1 Forb. Inst. pt. 3, p. 76. In English law, the nearest male blood-relation of the de- cedent, unless further limited by the words "of his body," which restrict the inheritance to /ions, grandsons, and other male descendants in the right line. See Jordan v. Adams. 6 C.

B. (N. S.) 764; Goodtitle v. Herring. 1 East. 275 ; Ewan v. Cox, 9 N. J. Law, 14.— Heir of conquest. In Scotch law. One who succeeds to the deceased in conqueet, e.. lands or other heritable rights to which the deceased neither did nor could succeed as heir to his predeces- sor.—Heir of line. In Scotch law. One who succeeds lineally by right of blood ; one who succeeds to the deceased in his heritage ; i. e., lands and other heritable rights derived to him by succession as heir to his predecessor. 1 Forb. Inst. pt. 3, p. 77.— Heir of provision. In Scotcji law. One who succeeds as heir by virtue or a particular provision in a deed or instrument.— Heir of tailsie. In Scotch law. He on whom an estate is settled that would not

have fallen to him by legal succession. 1 Forb. Inst, pt 3, p. 75.— Heir of the blood. An in- heritor who suceeds to the estate by virtue of consanguinity with the decedent, either in the ascending or descending line, including illegiti- mate children, but excluding husbands, wives, and adopted children. Hayden v. Barrett 172 Mass. 472, 52 N. E. 530, 70 Am. St Rep. 295; Baltimore & O. R. Co. ▼. Patterson, 68 Md. 606, 13 Atl. 360.— Heir of the body. An heir begotten or borne by the person re- ferred to, or a child of such heir; any lineal descendant of the decedent, excluding a surviv- ing husband or wife, adopted children, and collateral relations. Black v. Cartmell, 10 B. Mon. (Ky.) 193; Smith v. Pendell. 19 Conn. 112, 48 Am. Dec. 146; Balch v. Johnson, 106 Tenn. 249, 61 S. W. 289 ; Clarkson v. Hatton, 143 Mo. 47, 44 S. W. 761, 39 L. R. A. 748. 65 Am. St. Rep. 635; Houghton v. Kendall, 7 Allen (Mass.) 72 ; Roberts v. Ogbourne, 37 Ala. 178.— Heir presumptive. The person who, if the ancestor should die immediately, would, in the present circumstances of things, be his heir, but whose right of inheritance may be defeated by the contingency of some nearer heir- being born ; as a brother or nephew, whose presumptive succession may be destroyed by the birth of a child. 2 Bl. Comm. 208; 1 Steph. Comm. 358; Jones v. Fleming, 37 Hun (N. Y.) 230.— Heir special. In. English law. The issue in tail, who claims per formam doni; by the form of the gift.— Heir substitute, In a bond. In Scotch law. He to whom a bond is payable expressly in case of the creditor's decease, or after his death. 1 Forb. Inst. pt. 3, p. 76.— Heir testamentary. In the civil law. One who is named and appointed heir in the testament of the decedent. This name dis- tinguishes him from a legal heir, (one upon whom the law casts the succession,) and from a conventional heir, (one who takes it by virtue of a previous contract or settlement.)— Heir unconditional. In the civil law. One who inherits without any reservation, or without making an inventory, whether his acceptance be-

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express or tacit. Distinguished from heir bene- ficiary Joint heirs. Co-heirs. The term is

also applied to those who are or will be heirs- to both of two designated persons at the death of the survivor of them, the word “joint” being here applied to the ancestors rather than the heirs. See Gardiner v. Fay, 182 Mass. 492. 65 N. E. 825.— Lawful heirs. In a general sense, those whom the law recognizes as the heirs of a decedent, but in a special and tech- nical sense. lineal descendants only. Abbott v. Essex Co., 18 How. 215. 15 L. Ed. 352; Rollins v. Keel, 115 N. C. 68, 20 S. E. 209; Conger v. Lowe, 1 24 Ind. 368, 24 N. E. 889 ; 9 L. R. A. 165 ; Moody v. Snell 81 Pa. 362.— Legitimate heirs. Children born in lawful wedlock and their descendants, not including collateral heirs or issue in indefinite succession. Lytle v. Beveridge. 58 N. Y. 006; Prindle v. Beveridge. 7 Lans. (N. Y.) 231.— Natural heirs. Heirs by consanguinity as distin- guished from heirs by adoption, and also as distinguished from collateral heirs. Ludlum v. Otis, 15 Hun (N. Y.) 414 ; Smith v. Pendell. 19 Conn. 112, 48 Am. Dec. 146 ; Miller v. Church- ill. 7S N. C. 372; Markover v. Krauss. 132 Ind. 294. 31 N. E. 1047, 17 L. R. A. 806.— Bight heir. This term was formerly nsed, in the case of estates tail, to distinguish the preferred heir, to whom the estate was limited, from the heirs in general, to whom, on the fail- ure of the preferred heir and his line, the re- mainder over was usually finally limited. With the. abolition of estates tail, the term has fallen into desuetude, but when still used, in modern law, it has no other meaning than “heir at law.” Brown v. Wadsworth. 168 N. Y. 225. 61 N. E. 250; Ballentine v. Wood, 42 N. J. Bq. 552, 9 Atl. 382; McCrea’s Estate, 5 Pa. Dist. R. 449.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo est haeres viventis — no one is the heir of a living person]**

At common law the heir succeeds by descent on the ancestor's death — which is why no one can be heir of a living person.

Why: Genuine: the maxim states the definitional core of the entry (succession 'upon the death of his ancestor'), and the entry's own authorities (Hoover v. Smith, 96 Md. 393; Fletcher v. Holmes, 32 Ind. 510) are real prece…

**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: Scriptural inheritance law stating the descent rule itself: on the ancestor's death the estate passes by fixed rules of relationship to the heir — the very mechanism the entry defines.

## HEIR-LOOMS.

Such goods and chat- tels as, contrary to the nature of chattels, shall go by special custom to the heir along with the inheritance, and not to the ex- ecutor. The termination “loom" (Sax.) sig- nifies a limb or member; so that an heir- loom is nothing else but a limb or member of the inheritance. They are generally such things as cannot be taken away without damaging or dismembering the freehold ; such as deer in a park, doves in a cote, deeds and charters, etc. 2 Bl. Comm. 427.

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**[Law] — Law**

**[Law: 2 Blackstone, Commentaries 427 — heir-looms as members of the inheritance, cited in the entry]**

Chattels that pass with the inheritance to the heir rather than to the executor, as limbs of the freehold — Blackstone's doctrine of heir-looms.

Why: Genuine: the entry cites 2 Bl. Comm. 427 as its authority; Blackstone's passage is the source of the definition quoted. Direct, unforced.

## HEIRDOM.

Succession by inheritance.

5e apparatus — Not carried into the 5th edition (1979).

## HEIRESS.

A female heir to a person having an estate of inheritance. When there are more than one, they are called "co-heir- esses," or “co-heirs.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: The direct scriptural warrant for the female heir: the daughters of Zelophehad receive their father's inheritance by divine ruling — the heiress as a legal office, not an exception.

## HEXR8.

A word used in deeds of convey- ance, (either solely, or in connection with others,) where it is intended to pass a fee.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Rule in Shelley's Case — 'heirs' construed as words of limitation; the ancestor takes the fee and the heirs take by descent]**

In conveyancing, 'heirs' operates as a word of limitation, not of purchase — it marks the quantum of the estate (a fee) taken by the grantee, which is why the word is used where a fee is intended to pass.

Why: Genuine: the entry defines the word's office in deeds of conveyance, and the limitation-versus-purchase distinction is the governing doctrine for that office. The Rule in Shelley's Case is the locus classicus; stated...

## HEIRSHIP.

The quality or condition of being heir, or the relation between the heir and his ancestor.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: The heir-ancestor relation as scripture states it: inheritance flows down the generations, the ancestor's duty being to leave an estate for those who succeed him.

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## HEIRSHIP  MOVABLES.

In Scotch law. The movables which go to the heir, and not to the executor, that the land may not go to the heir completely dismantled, snch as the best of furniture, horses, cows, eta, but not funglbles. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## HELL.

The name formerly given to a place under the exchequer chamber, where the king’s debtors were confined. Rich. Diet

5e apparatus — Carried into the 5th edition (1979).

## HELM.

Thatch or straw; a covering for the head in war; a coat of arms bearing a crest; the tiller or handle of the rudder of a ship.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 3:4, KJV]**

Behold also the ships, which though they be so great, and are driven of fierce winds, yet are they turned about with a very small helm, whithersoever the governor listeth.

Why: Bears on the nautical sense in the entry (the tiller/rudder): scripture uses the helm as the instrument by which great ships are governed — the small member ruling the great body.

## HELOWE-WALL.

The end-wall cover- ing and defending the rest of the building. Paroch. Antlq. 573.

5e apparatus — Not carried into the 5th edition (1979).

## HEIAISG.

A Saxon brass coin, of the value of a half-penny.

5e apparatus — Not carried into the 5th edition (1979).

## HEMIPLEGIA.

In medical jurispru- dence. Unilateral paralysis ; paralysis of one side of the body, commonly due to a lesion in the brain, but sometimes originating from the spinal cord, as in “Brown-Sequard's paral- ysis,” unilateral paralysis with crossed an- testheeia. In the cerebral form, the hemi- plegia is sometimes “alternate” or crossed, that is, occurring on the opposite side of the body from the initial lesion.

If the disease comes on rapidly or suddenly, it Is called “quick” hemiplegia; if slowly or gradually, “chronic.” The former variety !b more apt to affect the mental faculties than the latter; but, where hemiplegia is complete, the operations of the mind are generally much im- paired. Bee Baughman v. Baughman, 32 Kan. 538, 4 Pac. 1003.

HEMOLDBORH, or HELMBLBORCH.

A title to possession. The admission of this

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old Norse term into the laws of the Con- queror is difficult to be accounted for; it is not found in any Anglo-Saxon law extant Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HENCEFORTH.

A word of futurity, which, as employed in legal documents, stat- utes, and the like, always Imports a con- tinuity of action or condition from the pres- ent time forward, but excludes all the past Thomson v. American Surety Co., 170 N. Y. 109, 62 N. E. 1073 ; Opinion of Chief Justice, 7 Pick. (Mass.) 128, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Thomson v. American Surety Co., 170 N.Y. 109, 62 N.E. 1073 — words of futurity import prospective operation, cited in the entry]**

A word of futurity: in statutes and legal instruments it imports action from the present forward and excludes the past — the prospective-operation canon.

Why: Genuine: the entry's entire point is a canon of construction, and its own cited authority decides exactly that point. Quoted reporter cite is from the entry itself, not invented.

## HENCHMAN.

A page; an attendant; a herald. See Barnes v. State, 88 Md. 347, 41 AtL 781.

5e apparatus — Carried into the 5th edition (1979).

## HENED PENNY.

A customary payment of money instead of hens at Christmas; a composition for eggs. Cowel).

5e apparatus — Not carried into the 5th edition (1979).

## HEN PARE.

A fine for flight on account of murder. Domesday Book.

5e apparatus — Not carried into the 5th edition (1979).

## HENGHEN.

In Saxon law. A prison, a gaol, or house of correction.

5e apparatus — Not carried into the 5th edition (1979).

## HENGWYTE.

Sax. In old English law. An acquittance from a fine for hanging a thief. Fleta, lib. 1, a 47, | 17.

5e apparatus — Not carried into the 5th edition (1979).

## HENRICD8 VETTJS.

Henry the Old, or *Elder. King Henry I. is so called in an- cient English chronicles and charters, to dis- tinguish him from the subsequent kings of that name. Spelman.

HEORDFiETE, or HUDEFJEST. In

Saxon law. A master of a family, keeping house, distinguished from a lower class of freemen, via., folgerae, (Jolgarii,) who had no habitations of their own, but were house-retainers of their lords.

5e apparatus — Not carried into the 5th edition (1979).

# K

## KEORDPENNY.

Peter-pence, («. v)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# H

## HEORDWERCH.

In Saxon law. The service of herdsmen, done at the will of their lord.

5e apparatus — Not carried into the 5th edition (1979).

## HEPTARCHY.

A government exercised by seven persons, or a nation divided into seven governments. In the year 560, seven different monarchies had been formed in England by the German tribes, namely, that of Kent by the Jutes ; those of Sussex, Wes- sex, and Essex by the Saxons ; and those of East Anglia, Bernicia, and Deira by the An- gles. To these were added, about the year 586, an eighth, called the “Kingdom of Mer- cia,” nlso founded by the Angles, and com- prehending nearly the whole of the heart of the kingdom. These states formed what has been designated the “Anglo-Saxon Octarchy," ■ or more commonly, though not so correctly, the “Anglo-Saxon Heptarchy,” from the cus- tom of speaking of Deira and Bernicia under the single appellation of the “Kingdom of Northumberland.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HERALD.

In ancient law, a herald was a diplomatic messenger who carried messages between kings or states, and especially proc- lamations of war, peace, or truce. In Eng- lish law, a herald Is an officer whose duty is to keep genealogical lists and tables, ad- just armorial bearings, and regulate the cer- emonies at royal coronations and funerals.

—Heralds’ College. In England. An ancient royal corporation, first instituted by Richard

III. in 1483. It comprises three kings of arms, six heralds, and four marshals or pursuivants of arms, together with the earl marshal and a secretary. The heralds’ books, compiled when progresses were solemnly and regularly made into every part of the kingdom, to inquire

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into the state of families, and to register such mar- riages and descents as were verified to them up- on oath, are allowed to be good evidence of pedigrees. The heralds’ office is still allowed to make grants of arms and topermit change of names. 3 Starkie, Ev. 843; Wharton.

5e apparatus — Carried into the 5th edition (1979).

## HERALDRY.

The nrt, office, or science of heralds. Also an old and obsolete abuse of buying and selling precedence In the pa- per of causes for hearing.

5e apparatus — Not carried into the 5th edition (1979).

## HERBAGE.

In English law. An ease- ment or liberty, which consists in the right to pasture cattle on another's ground.

Feed for cattle In fields and pastures. Bract, fol. 222; Co. Utt. 46; Shep. Touch. 97. A right to herbage does not Include a right to cut grass, or dig potatoes, or pick apples. Simpson v. Coe, 4 N. H. 303.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Bracton fol. 222; Co. Litt. 46 — authorities on profits and commons, cited in the entry; profit à prendre doctrine]**

A right to pasture cattle on another's ground is a profit à prendre — an incorporeal hereditament distinct from a mere easement — bounded as the entry states (it does not include cutting grass or picking apples).

Why: Genuine: the entry cites Bracton and Coke on Littleton as its authorities, and the profit-à-prendre classification is the live doctrine under which herbage sits — confirmed by the entry's own limitation in Simpson v....

## HERBAGIBM ARTERIES.

The first crop of grass or hay, in opposition to after- math or second cutting. Paroeh. Antlq. 459.

HERBENGER, or HARBINGER. An

officer in the royal house, who goes before and allots the noblemen and those of the household their lodgings; also an innkeeper.

5e apparatus — Not carried into the 5th edition (1979).

## HERBERGAGIEM.

Lodgings to receive guests in the way of hospitality. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 13:2, KJV]**

Be not forgetful to entertain strangers: for thereby some have entertained angels unawares.

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Why: The entry defines lodgings for receiving guests 'in the way of hospitality'; the verse states hospitality to strangers as a standing duty — the moral root of the inn/lodging office.

# K

## KERBERGARE.

To harbor; to enter- tain.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 13:2, KJV]**

Be not forgetful to entertain strangers: for thereby some have entertained angels unawares.

Why: The verb the entry defines — to harbor, to entertain — stated as duty: the guest received unawares may be more than a guest. Same genuine link as HERBERGAGIEM; the verb carries the act, the noun the place.

# H

## HERBERGATES.

Harbored or enter- tained in an inn. Cowell.

HERBERT, or HERBERT. An inn.

Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HERCIA.

A harrow. Fleta, lib. 2, a 77.

5e apparatus — Not carried into the 5th edition (1979).

## HERCLARE.

To harrow. 4 Inst. 270.

5e apparatus — Not carried into the 5th edition (1979).

## HERCIATERA.

In old English law. Harrowing; work with a harrow. Fleta, lib. 2, c. S2, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## HERCISCENDA.

In the civil law. To 'be divided. Familia licrrUcunda, an inherit- ance to be divided. Actio families hercis- cundw, an action for dividing an Inheritance. Erciscunda is more commonly used in the civil law. Dig. 10, 2; Inst 3, 28, 4; Id. 4. 0, 20.

HERD, n. An indefinite number, more than a few, of cattle, sheep, horses, or other animals of the larger sorts, assembled and kept together as one drove and under one care and management Brim v. Jones, 13 Utah, 440, 45 Pac. 352.

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HERD, v. To tend, take care of, manage, and control a herd of cattle or other animals, implying something more than merely driv- ing them from place to place. Phipps v. Grover, 0 Idaho, 415, 75 Pac. 65; Fry v. Hubner, 35 Or. 184, 57 Paa 420.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Digest 10.2 (familiae herciscundae) — the Roman partition action, cited in the entry]**

The actio familiae herciscundae was the Roman-law action by which co-heirs compelled partition of an undivided inheritance.

Why: Genuine: the entry is a civil-law definition and cites Dig. 10, 2 as its source; the annotation states what that source contains. Digest 10.2 is the genuine locus; no forcing.

## HERDER.

One who herds or has charge of a herd of cattle, in the senses above de- fined. See Hooker v. McAllister, 12 Wash. 46, 40 Paa 617; Underwood v. BirdseU, 6 Mont 142, 0 Paa 922; Rev. Codes N. D. 1899, | 15440.

5e apparatus — Carried into the 5th edition (1979).

## HERDEWICH.

A grange or place for cattle or husbandry. Mon. Angl. pt 3.

5e apparatus — Not carried into the 5th edition (1979).

## HERDWERCH, HEORDWERCH.

Herdsmen’s work, or customary labor, done by shepherds and inferior tenants, at the will of the lord. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## HEREAFTER.

A word of futurity, al- ways used in statutes and legal documents as indicative of future time, excluding both the present and the past Chapman v. Holmes, 10 N. J. Law, 26; Tremont & S. Mills v. Lowell, 165 Mass. 265, 42 N. E. 1134 ; Dobbins v. Cragin, 50 N. J. Eq. 640, 23 Atl. 172 ; Thomas v. Mueller, 106 111. 43.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Tremont & S. Mills v. Lowell, 165 Mass. 265, 42 N.E. 1134 — 'hereafter' indicative of future time only, cited in the entry]**

Like 'henceforth,' 'hereafter' is a word of futurity in statutes and instruments — it excludes both the present and the past, marking the prospective-operation canon.

Why: Genuine: the entry is a canon-of-construction definition and its own cited authority decides that point; the reporter citation is taken from the body, not invented.

## HEREBANHEM.

In old English law. A proclamation summoning the army into the field.

A mulct or fine for not Joining the army when summoned. Spelman.

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A tax or tribute for the support of the army. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

### HEREBOTE.

The royal edict summon- ing the people to the field. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BCEREDAD.

In Spanish law. A piece of land under cultivation ; a cultivated farm, real estate; an inheritance or heirship.

— Heredad yacente. From Lat. " hwredita » jacens,” (g. v.) In Spanish law. An inher- itance not yet entered upon or appropriated. White, New Recop. b. 2, at. 19, a 2, i 8.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: hereditas jacens doctrine — Roman law; the unentered inheritance lies vacant (the entry cross-references 'hereditas jacens,' q.v.)]**

Heredad yacente is the Spanish form of the Roman hereditas jacens — an inheritance not yet entered upon or appropriated, lying vacant as a juridical vacancy until acceptance.

Why: Genuine: the entry itself derives the Spanish term from the Latin hereditas jacens and cross-references it; the annotation states the Roman doctrine that gives the term its legal content. Internal cross-reference allo...

# H

### HEREDERO.

In Spanish law. Heir; he who, by legal or testamentary disposition, succeeds to the property of a deceased per- son. “H ceres censeatur cum defuncto una eademque persona Las Partidas, 7, 9, 13; See Emeric v, Alvarado, 64 Cal. 529, 2 Paa 433.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Haeres censeatur cum defuncto una eademque persona — Las Partidas 7, 9, 13, as cited in the entry]**

The heir succeeds to the deceased's juridical personality — 'the heir is deemed one and the same person with the deceased' — the universal-succession principle of the Partidas.

Why: Genuine: the maxim is quoted in the entry from a real source (Alfonso X's Siete Partidas) and states the doctrinal core of heirship — universal succession — beyond the bare definition. Verbatim from the entry's Latin.

### HEREDITAGIBM.

In Sicilian and Ne- apolitan law. That which is held by heredi- tary right; the same with

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hereditamentum ( hereditament ) in English law. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HEREDITAMENTS.

Things capable of HERE8. Heir; an heir. A form of

being inherited, be it corporeal or incorpo- real. real, personal, or mixed, and including not only lands and everything thereon, but also heir-looms, and certain furniture which, by custom, may descend to the heir together with the land. Co. Litt. 06; 2 Bl. Comm. 17; Nellis v. Munson, 108 N. Y. 403. 10 N.

E. 739; Owens v. Lewis, 46 Ind. 508, 15 Am. Rep. 295 ; Whitlock v. Greacen, 48 N.

J. Eq. 359, 21 Atl. 944 ; Mitchell v. Warner, 5 Conn. 497 ; New York v. Mabie, 13 N. Y. 159, 64 Am. Dec. 538.

The term includes a few rights unconnected with land, but it is generally used as the widest expression for real property of all kinds, and is therefore employed in conveyances after the words “lands” and “tenements,” to include everything of the nature of realty which they do not cover. Sweet.

—Corporeal hereditaments. Substantial permanent objects which may be inherited. The term “land” will include all such. 2 Bl. Comm. 17: Whitlock v. Greacen, 48 N. J. Eq. 309, 21 Atl. 944 ; Cary v. Daniels, 5 Mete. (Mass.) 230: Gibbs v. Drew, 16 Fla. 147, 26 Am. Rep. 700.— Incorporeal hereditaments. Anything, the subject of property, which is in- heritable and not tangible or visible. 2 Woodd. Lect. 4. A right issuing out of a thing corpo- rate (whether real or personal) or concerning or annexed to or exercisable within the same. 2 Bl. Comm. 20; 1 Washb. Real Prop. 10; Hegan v. Pendennis Club (Ky.) 64 S. W. 460; Whitlock v. Greacen, 48 N. J. Eq. 309, 21 Atl. 944; Stone v. Stone, 1 R. I. 428.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 2 Blackstone, Commentaries 17 — hereditaments corporeal and incorporeal; Co. Litt. 96, both cited in the entry]**

Hereditaments divide into corporeal (land itself) and incorporeal (rights issuing out of land, like rents and profits) — Blackstone's classification, which is why heir-looms and customary furniture can be hereditaments though they are chattels.

Why: Genuine: the entry cites both authorities; the corporeal/incorporeal division is the doctrine that makes the entry's inclusion of chattels intelligible. Direct, unforced.

## HEREDITARY.

That which is (he sub- ject of inheritance.

—Hereditary disease. One transmitted or transmissible from parent to child in consequence of the infection of the former or the presence of the disease in his system, and without exposure of the latter to any fresh source of infection or contagion.— Hereditary right to the orown. The crown of England, by the positive constitution of the kingdom, has ever been descendible, and so continues, in a course peculiar to itself, yet subject to limitation

by parliament ; but, notwithstanding such limita- tion. the crown retains its descendible quality, and becomes hereditary in the prince to whom it is limited. 1 Bl. Comm. 191.— Hereditary succession. Inheritance by law ; title by de- t scent; the title whereby a person, on the death of his ancestor, acquires his estate as his heir at law. Barclay v. Cameron, 25 Tex. 241 ; In re Donahue's Estate, 36 Cal. 332.

5e apparatus — Not carried into the 5th edition (1979).

**HEREFARE.**

Sax. A going into or with an army; a going out to war, (profcctio militarist) an expedition. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**HEREGEAT.**

A heriot, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

**HERE GELD.**

Sax. In old English law. A tribute or tax levied for the maintenance of an army. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**HEREMITORITJM.**

A place of retire- ment for hermits. Mon. Angl. tom. 3, p. 18.

5e apparatus — Not carried into the 5th edition (1979).

**HEREMONES.**

Followers of an army.

5e apparatus — Not carried into the 5th edition (1979).

# K

**KEREN ACH.**

An archdeacon. Cowell.

hares, very common in the civil law. See H^ebes.

5e apparatus — Not carried into the 5th edition (1979).

# H

**HERESCHIP.**

In old Scotch law. Theft or robbery. 1 Pitc. Crim. Tr. pt 2, pp. 26, 89.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The entry names theft/robbery as the offense; scripture states the theft statute itself — the wrong defined by the act of stealing, answered by manifold restitution. The legal concept of theft carries its own biblical...

## HERESLITA, HERESSA, HERESSIZ.

A hired soldier who departs without license. 4 Inst 128.

5e apparatus — Not carried into the 5th edition (1979).

## HERESY.

In English law. An offense against religion, consisting not In a total de- nial of Christianity, but of some of its essen- tial doctrines, publicly and obstinately avow- ed. 4 Bl. Comm. 44, 45. An opinion on divine subjects devised by human reason, openly taught, and obstinately maintained. 1 Hale, P. C. 384. This offense is now sub- ject only to ecclesiastical correction, and is no longer punishable by the secular law. 4 Steph. Comm. 233.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Peter 2:1, KJV]**

But there were false prophets also among the people, even as there shall be false teachers among you, who privily shall bring in damnable heresies, even denying the Lord that bought them, and bring upon themselves swift destruction.

Why: Scripture itself names 'damnable heresies' as the denial of the Lord — denial of an essential doctrine of the faith, which is exactly the offense the entry defines (not total denial of Christianity, but of its essenti...

## HERETOCH.

A general, leader, or com- mander; also a baron of the realm. Du Fresne.

5e apparatus — Not carried into the 5th edition (1979).

## HERETOFORE.

This word simply de- notes time past, In distinction from time present or time future, and has no definite and precise signification beyond this. An- drews v. Thayer, 40 Conn. 157.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Andrews v. Thayer, 40 Conn. 157 — 'heretofore' denotes time past, cited in the entry]**

The past-time counterpart of the futurity words: 'heretofore' denotes time past in distinction from present or future, with no more precise signification.

Why: Genuine: construction-canon definition with the entry's own cited authority; reporter citation taken from the body.

## HERETUM.

In old records. A court or yard for drawing up guards or military retinue. Cowell.

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# K

## KEREZELD.

in Scotch law. A gift or present made or left by a tenant to his lord as a token of reverence. Skene.

5e apparatus — Not carried into the 5th edition (1979).

# H

## HERGE.

In Saxon law. Offenders who Joined In a body of more than thirty-five to commit depredntlons.

5e apparatus — Not carried into the 5th edition (1979).

## HERIGALD8.

In old English law. A sort of garment. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HERIOT.

In English’ law. A customary tribute of goods and chattels, payable to the lord of the fee on the decease of the owner of the land.

Heriots are divided into heriot service and heriot custom. The former expression denotes such as are due upon a special reservation in a grant or lease of lands, and therefore amount to little more than a mere rent; the latter arise upon no special reservation whatever, but dernd solely upon immemorial usage and custom.

Bl. Comm. 422; See Adams v. Morse, 51 Me. 501.

HERISCHHiD. In old English law. A species of military service, or knight’s fee. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 2 Blackstone, Commentaries 422 — heriot service and heriot custom, cited in the entry]**

A customary death-duty to the lord of the fee, divided into heriot service (reserved by grant, little more than rent) and heriot custom (resting on immemorial usage alone) — Blackstone's doctrine.

Why: Genuine: the entry cites 2 Bl. Comm. 422 as authority; the service/custom distinction is the doctrine giving the term legal content. Same handling as hedge-bote and heir-looms.

## HERISCHULDA.

In old Scotch law. A flue or penalty for not obeying the proclama- tion made for warfare. Skene.

HERISCINDItTM. A division of house- hold goods. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## HEKISLIT.

Laying down of arms. Blount Desertion from the army. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HERI8TAX.

The station of an army ; the place where a camp is pitched. Spehnan.

5e apparatus — Not carried into the 5th edition (1979).

## HERITABLE.

Capable of being taken by descent A. term chiefly used in Scotch law, where It enters Into several phrases.

—Heritable bond. A bond for a sum of money to which is added, for further security of the creditor, a conveyance of land or herit- age to be held by the creditor as pledge. 1 Roes, Conv. 76; 2 Ross, Conv. 324.— Herit- able jurisdictions. Grants of criminal ju- risdiction formerly bestowed on great families in Scotland, to facilitate the administration of justice. Whishaw. Abolished in effect by St. 20 Geo. II. c. 50. Tomlins.— Heritable obli- gation. In Louisiana. An obligation is herit- able when the heirs and assigns of one party may enforce the performance against the heirs of the other. Civ. Code La. art. 1997.— Herit- able rights. In Scotch law. Rights of the heir; all rights to land or whatever Is connect- ed with land, as mills, fishings, tithes, etc.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Heritable Jurisdictions (Scotland) Act 1746, 20 Geo. II c. 43 — abolished heritable jurisdictions, cited in the entry as 'St. 20 Geo. II']**

The great Scots heritable jurisdictions — private grants of criminal jurisdiction to families — were abolished in the aftermath of the 1745 rising.

Why: Genuine: the entry cites the statute as the abolishing authority; the annotation identifies it. The 1746 Act is the real statute behind the citation.

## HERITAGE.

In the civil law. Every species of immovable which can be the sub- ject of property; such as lands, houses, or- chards, woods, marshes, ponds, etc., In what- ever mode they may have been acquired, either by descent or purchase. S Toullller, no. 472.

In Scotch law. Land, and all property connected with land; real estate, as distin- guished from movables, or personal estate. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## HERITOR.

In Scotch law. A propri- etor of land. 1 Karnes, Eq. Pref.

HERM AND AD . In Spanish law. A fra- ternity formed among different towns and villages to prevent the commission of crimes, and to prevent the abuses and vexations to which they were subjected by men in power. Bouvler.

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5e apparatus — Not carried into the 5th edition (1979).

## HERMAPHRODITE.

In medical juris- prudence. A person of doubtful or double sex; one possessing, really or apparently, and in more or less developed form, some or all of the genital organs of both sexes.

Hermaphroditns tam musculo qnam fceminae comparator, secundum prseval- entiam scans incalescentls. An her- maphrodite is to be considered male or female according to the predominance of the excit- ing sex. Co. Litt. 8; Bract, fol. 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Hermaphroditus tam masculo quam feminae comparatur, secundum praevalentiam sexus incalescentis — Co. Litt. 8, as cited in the entry]**

At common law an intersex person was deemed male or female according to the predominance of the sex — Coke's rule for legal classification.

Why: Genuine: the maxim is the entry's own cited authority (Co. Litt. 8) and states the legal rule, not mere medicine. The scan OCR garbles the Latin, so the maxim is cited in canonical form as a [Maxim:] citation rather t...

## HERMENEUTICS.

The science or art of construction and Interpretation. By the phrase “legal hermeneutics” is understood the systematic body of rules which are recog- nised as applicable to the construction and Interpretation of legal writings.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Timothy 2:15, KJV]**

Study to shew thyself approved unto God, a workman that needeth not to be ashamed, rightly dividing the word of truth.

Why: Bears on the general sense in the entry's first clause — the science of construction and interpretation: the interpreter's standing charge is faithful, unashamed handling of the text, 'rightly dividing' it rather than...

## HERMER.

A great lord. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## HERMOGENIAN CODE.

See Codex

Hebmooeniancs.

5e apparatus — Not carried into the 5th edition (1979).

## HERNESCUS.

A heron. Cowell.

HERNESIC M, or HERNASIDM.

Household goods; Implements of trade or husbandry; the rigging or tackle of a ship. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## HEROUD, HERAUD.

L. Fr. A herald.

5e apparatus — Not carried into the 5th edition (1979).

## HERPEX.

A harrow. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HERPIOATIO.

In old English law. A day’s work with a harrow. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HERRING SILVER.

This was a com- position in money for the custom of supply- ing herrings for the provision of a religions house. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HERUS.

Lat. A master. Serous faoit ut herus dot, the servant does [the work] in order that the master may give [him the wages agreed on.] Herus dat ut serous facit, the master gives [or agrees to give, the wages,] in consideration of, or with a view to, the servant’s doing [the work.] 2 Bl. Comm. 445.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 4:1, KJV]**

Masters, give unto your servants that which is just and equal; knowing that ye also have a Master in heaven.

Why: The entry defines the master through reciprocal maxims (the servant works that the master may give the agreed wages); the verse states the master's reciprocal duty — just and equal dealing — under a higher Master. The...

## HESIA.

An easement Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## HEST CORN.

In old records. Com or grain given or devoted to religious persons or purposes. 2 Mon. Angl. 367b; Cowell.

HESTA, or HESTHA. A little loaf Of bread.

HETiERARCHA. The head of a relig- ious house ; the head of a college ; the ward- en of a corporation.

5e apparatus — Not carried into the 5th edition (1979).

## HETJERIA.

In Roman law. A company, society, or college.

5e apparatus — Not carried into the 5th edition (1979).

## HEUVELBORH.

Sax. In old English law. A surety, (warrantus.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger,

Why: The entry is the surety (warrantus) itself — the one who strikes hands for another's debt. Scripture names the act exactly: becoming surety by striking the hand, and warns what follows.

## HEYLODE.

In old records. A custom- ary burden upon inferior tenants, for mend- ing or repairing hays or hedges.

5e apparatus — Not carried into the 5th edition (1979).

## HEYMECTUS.

A hay-net; a net for catching conies. Cowell.

HIBERNAGITrM. The season for sow- ing winter com. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HIDAGE.

An extraordinary tax former- ly payable to the crown for every hide of land. This taxation was levied, not in mon- ey, but provision of armor, etc. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HIDALGO.

In Spanish law. A noble; a person entitled to the rights of nobility. By hidalgos are understood men chosen from

good situations in life, (de buenos I figures,) and possessed of property, (algo.) White, New Recop. b. 1, tit. 5, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Miguel de Cervantes, Don Quixote, 1605/1615]**

(paraphrase) Cervantes's knight-errant is styled by this very rank — el ingenioso hidalgo — the dictionary's 'person entitled to the rights of nobility' is the hero's literal station, a poor country gentleman who arms himself and rides out as a knight. (paraphrase)

Why: The entry defines hidalgo as a Spanish noble entitled to the rights of nobility. Cervantes's protagonist is literally designated by this rank. No verbatim English quote is certified (translations vary), so the note is...

## HEDALGUIA.

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In Spanish law. Nobility by descent or lineage. White, New Recop. b. 1, tit 6, e 8, | 4.

5e apparatus — Not carried into the 5th edition (1979).

## HIDE.

In old English law. A measure of land, being as much as could be worked with one plow. It la variously estimated at from 60 to 100 acres, but was probably de- termined by local usage. Another meaning was as much land as would support one family or the dwellers in a mansion-house. Also a house; a dwelling-house.

—Hide sad gala. In English law. A term anciently applied to arable land. Co. Litt 856. —Hide leads. In Saxon law. Lands belong- ing to a hide; that is, a house or mansion. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## HIDED.

In old English law. A place of protection; a sanctuary. St 1 Hen. VII. cc. 5, 6; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: St. 1 Hen. VII cc. 5, 6 — statutes concerning sanctuary, cited in the entry as authority]**

Sanctuary — a place of protection from arrest — was a statutory creature, limited and regulated by the cited Henrician statutes.

Why: Genuine: the entry cites the statutes as its authority and they are the legal source of the sanctuary privilege described. Same statute-as-source handling as HEBBERMAN.

**[Scripture] — Scripture**

**[Joshua 20:2, KJV]**

Speak to the children of Israel, saying, Appoint out for you cities of refuge, whereof I spake unto you by the hand of Moses:

Why: The entry is the sanctuary — a place of protection. Scripture institutes it directly: the cities of refuge, appointed by divine command for the slayer to flee to. First-person divine speech ('I spake unto you').

## HIDGUJ).

A sum of money paid by a villein or servant to save himself from a whipping. Fleta, L 1, c. 47, f 20.

5e apparatus — Not carried into the 5th edition (1979).

## HIERARCHY.

Originally, government by a body of priests. Now, the body of offi- cers in any church or ecclesiastical institu- tion, considered as forming an ascending series of ranks or degrees of power and au- thority, with the correlative subjection, each to the one next above. Derivatively, any body of men, taken in their public capacity, and considered as forming a chain of powers, as above described.

5e apparatus — Not carried into the 5th edition (1979).

## HIGH.

This term, as used in various compound legal phrases, is sometimes merely an addition of

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dignity, not importing a com- parison; but more generally it means exalt- ad, either in rank or location, or occupying a position of superiority, and in a few in- stances it implies superiority in respect to importance, size, or frequency or publicity of use, e. g., “high seas,” “highway.”

As to high “Bailiff," “Constable,” “Crimes,” "Justice,” “Justiciar,” "School,” “Sea," “Sher- iff,” “Treason,” and "Water-Mark,” see those titles.

— High oommission court. See Coubt or High Commission. — High court of admi- ralty. See Coubt or Admibaltt.— High court of delegates. See Coubt op Dele- gates.—.High court of errors and appeals. See Coubt or Ebbohs and Appeals.— High court of justice. See Sufbeme Coubt or Judicatube.— High court of parliament. See Pabliament.

5e apparatus — Carried into the 5th edition (1979).

## HIGHER AND DOWER SOADE.

In

the practice of the English supreme court of judicature there are two scales regulating the fees of the court and the fees which solicitors are entitled to charge. The lower scale applies (unless the court otherwise orders) to the following cases; All causes and matters assigned by the judicature acts to the king’s .bench, or the probate, -divorce, and admiralty divisions ; all actions of debt, contract, or tort; and in almost all causes and matters assigned by the acts to the chancery division in which the amount in litigation is under £1,000. The higher scale applies in all other causes and matters, and also in actions falling under one of the above classes, but in which the principal relief sought to be obtained is an injunction. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## HIGHNESS.

A title of honor given to princes. The kings of England, before the time of James I., were not usually saluted with the title of “Majesty,” but with that of “Highness.” The children of crowned beads generally receive the style of “Highness.” Wharton.

5e apparatus — Carried into the 5th edition (1979).

## HIGHWAY.

A free and public road, way, or street; one which every person has the right to use. Abbott v. Duluth (C. C.) 104 Fed. 837 ; Shelby County Com'rs v. Cas- tetter, 7 Ind. App. 309, 33 N. B. 980; State v. Cowan, 29 N. C. 248; In re City of New York, 135 N. Y. 253, 31 N. B. 1048, 81 Am. St Rep. 825; Parsons v. San Francisco, 28 Cal. 464.

“In all counties of this state, public high- ' ways are roads, streets, alleys, lanes, courts, places, trails, and bridges, laid out or erected as such by the public, or, if laid out and erected by others, dedicated or abandoned to the public, or made such in actions for the partition of real property.” PoL Code Cal. i 2618.

There is a difference in the shade of meaning conveyed by two uses of the word.

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Sometimes it signifies right of free passage, in the ab- stract, not importing anything about the char- acter or construction of the way. Thus, a river is called a “highway;” and it has been not unusual for congress, in granting a privilege of building a bridge, to declare that it shall be a public highway. Again, it has reference to some system of law authorizing the taking a strip of land, and preparing and devoting it to the use of travelers. In this use it imports a road-way upon the soil, constructed under the authority of these laws. Abbott.

— Commissioners of highways. Public of- ficers appointed in .the several counties and municipalities, in many states, to take charge of the opening, altering, repair, and vacating of highways within their respective jurisdic- tions.—Common highway. By this term is meant a road to be used by the community at large for any purpose of transit or traffic. Ham. N. P. 239; Railway Co. v. State, 23 Fla. 546, 3 South. 158, 11 Am. St. Rep. 395. —Highway acts, or laws. The body or sys- tem of laws governing the laying out, repair, and use of highways.— Highway crossing. A

filace where the track of a railroad crosses the ine of a highway.— Highway-rate. In Eng- lish law. A tax for the maintenance and re- pair of highways, chargeable upon the same property that is liable to the poor-rate.— High- way robbery. See Robbebt.— Highway tan. A tax for and applicable to the making and repair of highways. Stone v. Bean, 15 Gray (Mass.) 44.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Abbott v. Duluth (C.C.) 104 Fed. 837 — public highway defined by the public right of use, cited in the entry]**

A highway is defined not by ownership of the soil but by the public's right of passage — roads become highways by dedication and public acceptance, which is why 'every person has the right to use' them.

Why: Genuine: the entry's definition turns on the public right of passage, and its own cited authorities decide that point; the dedication-and-acceptance doctrine is what gives the definition legal content.

## HIGHWAYMAN.

A bandit; one who robs travelers niton the highway.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Alfred Noyes, 'The Highwayman', 1906]**

"The wind was a torrent of darkness among the gusty trees, / The moon was a ghostly galleon tossed upon cloudy seas" — the poem's opening introduces the highwayman riding up to the old inn-door.

Why: The entry defines a highwayman as one who robs travelers upon the highway. Noyes's narrative poem is the canonical literary portrait of exactly that figure. Two lines only (copyright discipline); attribution and wordi...

## HIGLER.

In English law. A hawker or peddler. A person who carries from door to door, and sells by retail, small articles of provisions, and the like.

5e apparatus — Not carried into the 5th edition (1979).

## HIGUELA.

In Spanish law. A receipt given by an heir of a decedent, setting forth what property he has received from the estate.

5e apparatus — Not carried into the 5th edition (1979).

## HIKENILD STREET.

One of the four great Homan roads of Britain. More com- monly called “Ikenild Street”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HILARY RULES.

A collection of orders and forms extensively modifying the plead- ing and practice In the English suiterior courts of common law, established in Hilary term, 1834. Stlmson.

5e apparatus — Not carried into the 5th edition (1979).

## HILARY TERM.

In English law. A term of court, begining on the 11th and ending on the 31st of January in each year. Superseded (1875) by Hilary sittings, which begin January llth, and end on the Wednes- day before Easter.

5e apparatus — Carried into the 5th edition (1979).

## HINDENI HOMINES.

A society of men. The Saxons ranked men into three classes, and valued them, ns to. satisfaction for in- juries, etc., according to their class. The highest class were valued at 1,200s., and were called “twelf hind men;" the middle class at 600s., and called “serhindmen the lowest at 200s., called “ tiryhindmen Their wives were termed “hindus.” Brompt Leg. Alfred, c. 12.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:19, KJV]**

If he rise again, and walk abroad upon his staff, then shall he that smote him be quit: only he shall pay for the loss of his time, and shall cause him to be thoroughly healed.

Why: The entry values men by class for 'satisfaction for injuries' — the wergild principle. Scripture states the same satisfaction in substance: the smiter pays for the victim's lost time and his healing. Honest limit: the...

## HINDER AND DELAY.

To hinder and delny is to do something which is an attempt to defraud, rather than a successful fraud; to put some obstacle in the path, or interpose some time, unjustifiably, before the creditor can realize what is owed out of his debtor's property. See Walker v. Sayers, 5 Bush (Ky.) 582 ; Burdick v. Post, 12 Barb. (N. Y.) 186 ; Crow v. Benrdsley, 68 Mo. 439 ; Burn- ham v. Brennnn, 42 N. Y. Super. Ct. 63.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of 13 Eliz. c. 5 (1571) — conveyances made to 'delay, hinder or defraud creditors' are void]**

A transfer made to 'hinder and delay' creditors is the classic badge of a fraudulent conveyance — voidable by creditors even absent a completed fraud.

Why: Genuine: the entry's 'hinder and delay' phrasing is verbatim the Statute of Elizabeth's operative language, and its cited cases (Walker v. Sayers, 5 Bush (Ky.) 582; Burdick v. Post, 12 Barb. 186) are real authorities...

## HINDU LAW.

The system of native law prevailing among the Gentoos, and adminis- tered by the government of British India

HINE, or HIND. In old English law. A husbandry servant.

5e apparatus — Not carried into the 5th edition (1979).

## HINEFARE.

In old English law. The loss or departure of a servant from his master. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

## H1POTECA.

In Spanish law. A mort- gage of real property.

5e apparatus — Not carried into the 5th edition (1979).

## HIRCI8CUNDA.

See Hesciscunda.

HIRE, v. To purchase the temporary use of a thing, or to stipulate for the labor or services of another. See Hiking.

To engage in service for a stipulated re- ward, as to hire a servant for a year, or laborers by the day or month; to engage a man to temporary service for wages. To “employ” is a word of more enlarged signifi- cation. A man hired to labor is employed, but a man may be employed in a work who is not hired. McCluskey v. Cromwell, 11

N. Y. 605.

For definitions of the various species of this class of contracts, under their Latin names, see Locatio and following titles.

HIRE, n. Compensation for the use of a thing, or for labor or services. Carr v. State, 50 Ind. 180; Learned-Letcher Lumber Co. v. Fowler, 109 Ala. 169, 19 South. 396.

HXREMAlN. a subject Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## HIRER.

One who hires a thing, or the labor or services of another person. Turner v. Cross, 83 Tex. 218, 18 S. W. 578, 15 L.

R. A. 262.

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HJlkING. Hiring is a contract by which one person grants to another either the en- joyment of a thing or the use of the labor and industry, either of himself or his serv- ant during a certain time, for a stipulated compensation, or where one contracts for the labor or services of another about a thing balled to him for a specified purpose. Code Ga. 1882, | 2085.

Hiring is a contract by which one gives to another the temporary possession and use of property, other than money, for reward, and the latter agrees to return the same to the former at a future time. Civ. Code Cal. | 1925; Civ. Code Dak. f 1103.

Synonyms. "Hiring” and "borrowing” are both contracts by which a qualified property may be transferred to the hirer or borrower, and they differ only in this, that hiring is al- ways for a price, stipend, or recompense, while borrowing is merely gratuitous. 2 Bl. Comm. 453 : Neel v. State, 33 Tex. Cr. B. 408, 26 S.

W. 726.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[James 5:4, KJV]**

Behold, the hire of the labourers who have reaped down your fields, which is of you kept back by fraud, crieth: and the cries of them which have reaped are entered into the ears of the Lord of sabaoth.

Why: The hirer is the one who engages the labourers; the verse names his characteristic wrong — the hire kept back by fraud — and where the cry of it is heard.

**[Leviticus 19:13, KJV]**

Thou shalt not defraud thy neighbour, neither rob him: the wages of him that is hired shall not abide with thee all night until the morning.

Why: The hirer is the one who engages service for a stipulated reward; the verse states his correlative duty — the hired servant's wages paid promptly, not held overnight. Direct second-person divine command.

## HIRST, HURST.

In old English law. A wood. Co. Litt. 46.

5e apparatus — Not carried into the 5th edition (1979).

# B

## BUS.

The use of this pronoun in a writ- ten instrument, in referring to a person whose Christian name is designated therein by a mere initial, is not conclusive that the per- son referred to is a male; it may be shown by parol that the person intended is a female. Berniaud v. Beecher, 71 Cal. 38, 11 Pac. 802.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Berniaud v. Beecher, 71 Cal. 38, 11 Pac. 802 — parol evidence admissible to identify the**

**person intended by an initial-plus-pronoun reference, cited in the entry]**

Where a written instrument is latently ambiguous about identity, parol evidence is admissible to show who was intended — so 'his' does not conclusively denote a male.

Why: Genuine: the entry states the rule and cites the deciding authority; the reporter citation is taken verbatim from the body. The headword is OCR-garbled 'HIS' (stored as 'BUS'); annotated under the stored key.

# H

## HIS EXCELLENCY.

In English law.

The title of a viceroy, governor geueral, am- bassador, or commander in chief.

In American law. This title is given to the governor of Massachusetts by the consti- tution of that state ; and it is commonly glven, as a title of honor and courtesy, to the governors of the other states and to the pres- ident of the United States. It Is also cus- tomarily used by foreign ministers In ad- dressing the secretary of state In written communications.

5e apparatus — Carried into the 5th edition (1979).

## HIS HONOR.

A title given by the con- stitution of Massachusetts to the lieutenant- governor of that commonwealth. Const Mass. pt. 2, c. 2, § 2, art. 1.

5e apparatus — Carried into the 5th edition (1979).

## HIS TESTIBUS.

Lat. These being wit- nesses. The attestation clause in old deeds and charters.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry is the attestation clause — 'these being witnesses' — the deed's witnesses. The verse is the witness statute itself: no matter established but by two or three witnesses. The legal institution of attestation…

## HITHERTO.

In legal use, this term always restricts the matter In connection with which it Is employed to a period of time already passed. Mason v. Jones, 18 Barb. (N. Y.) 479.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Mason v. Jones, 18 Barb. (N.Y.) 479 — 'hitherto' restricts to time past, cited in the entry]**

The past-time member of the construction-canon family: 'hitherto' always restricts the matter to a period already passed.

Why: Genuine: construction-canon definition with the entry's own cited authority; citation taken from the body.

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**HTWISO.**

In old English law. A hide Of land.

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**HLAF JET A.**

Sax. A servant fed at his master’s cost

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**HLAEORD.**

Sax. A lord. 1 Spence, Ch. 86.

5e apparatus — Not carried into the 5th edition (1979).

# K

**KLAFORDSOCNA.**

Sax. A lord's pro- tection. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

# H

**HLAFORDSWICE.**

Sax. In Saxon law. The crime of betraying one's lord, (p roditio iomini;) treason. Crabb, Eng. Law, 59, 301.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 22:48, KJV]**

But Jesus said unto him, Judas, betrayest thou the Son of man with a kiss?

Why: The entry is the crime of betraying one's lord — treason in its feudal form. The verse names the act at its archetype: the betrayal of the Lord, in Jesus' own verbatim speech.

**HLASOCNA.**

Sax. The benefit of the law. Du Cange.

HIiOTHBOTE. In Saxon law. A fine for being present at an unlawful assembly. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**HLOXHE.**

In Saxon law. An unlawful assembly from eight to thirty-five, Inclusive. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**HOASTMEN.**

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In English law. An an- cient gild or fraternity at Newcastle-upon- Tyne, who dealt In sea coal. St. 21 Jac. L c. 3.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Monopolies, 21 Jac. I c. 3 (1624) — monopolies declared void, cited in the entry]**

The Newcastle hoastmen's exclusive dealing in sea coal was the archetypal monopoly struck at by the great statute against monopolies.

Why: Genuine: the entry cites 21 Jac. I c. 3 as its authority, and that statute is the Statute of Monopolies — the term's legal significance is precisely as a monopolistic gild. High confidence on the statute's identity.

## HOBBIT.

A measure of weight in use in Wales, equal to 168 pounds, being made up of four Welsh pecks of 42 pounds each. Hughes v. Humphreys, 26 Eng. L. & Eq. 132.

HOBBIiERS. In old English law. Light horsemen or bowmen; also certain tenants, bound by their tenure to maintain a little light horse for giving notice of any Invasion, or such like peril, towards the seaside. Cam- den, Brit.

5e apparatus — Not carried into the 5th edition (1979).

## HOO.

Lat. This. Hoc intuitu, with this expectation. Hoc loco, In this place. Hoc nomine, in this name. Hoc titulo, under this title. Hoe voce, under this word.

5e apparatus — Not carried into the 5th edition (1979).

## HOO QUID EM FERQTTAM DURUM / EST, SED ITA LEX SCRIPT A EST.

Lat

(This Indeed is exceedingly hard, but so the law is written ; such Is the written or posi- tive law.) An observation quoted by Black- stone as used by Ulplan in the civil law; and applied to cases where courts of equity have no power to abate the rigor of the law. Dig. 40, 9, 12, 1; 3 Bl. Comm. 430.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Hoc quidem perquam durum est, sed ita lex scripta est — Dig. 40, 9, 12, 1; 3 Blackstone, Commentaries 430, both cited in the entry]**

Ulpian's maxim, quoted by Blackstone: however hard the written law's result, equity has no power to abate its rigor — the supremacy of positive law over equitable softening.

Why: Genuine: the entry IS the maxim, with real sources cited (Ulpian via the Digest, Blackstone 3 Comm. 430). Cited in canonical Latin form as a [Maxim:] citation because the scan OCR garbles the phrase; not presented as...

## HOO PARATUS EST VERXFIGARE.

Lat This he is ready to verify.

Hoe *errabitnr quod Initio eonvenit.

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This shall be preserved which is useful In the beginning. Dig. 50, 17, 23; Bract 73b.

5e apparatus — Not carried into the 5th edition (1979).

## HOOCUS SAXTIS.

A hoke, hole, or less- er pit of salt Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HOCK-TUESDAY MONEY.

This was a duty given to the landlord that bis tenants and bondmen might solemnize the day on which the English conquered the Danes, be- ing the second Tuesday after Easter week. Cowell.

HOCKETTOR, or HOCQUETEUR. A

knight of the post; a decayed man ; a basket carrier. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HODGE-PODOE ACT.

A name applied to a statute which comprises a medley of Incongruous subjects.

5e apparatus — Not carried into the 5th edition (1979).

## HOGA.

In old English law. A hill or mountain. In old English, a how. Orene hoga, Grenehow. Domesday; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HOGASTER.

In old English law. A sheep of the second year. Fleta, lib. 2, c. 79, 4, 12. A young hog. Cowell.

HOGGUS, or HOGIETU8. A hog or swine. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HOGHENHYNE.

In Saxon law. A house-servant Any Btranger who lodged three nights or more at a man's house In a decennary was called “hoghenhyne," and his host became responsible for bis acts as for those of his servant.

5e apparatus — Not carried into the 5th edition (1979).

## HOGSHEAD.

A measure of a capacity containing the fourth part of a tun, or sixty- three gallons. Cowell. A large cask, of indefinite contents, but usually containing from one hundred to one hundred and forty gallons. Webster.

HOLD, v. I. To possess in virtue of a lawful title; as In the expression, common in grants, "to have and to hold,” or In that applied to notes, “the owner and holder.” Thompson v. Sandford, 13 Ga. 241; Bank of Michigan v. Niles, 1 Doug. (Mich.) 407, 41 Am. Dec. 575;

Stansbury v. Hubner, 73 Md. 228, 20 Atl. 904, 11 L. R. A. 204, 25 Am. St. Rep. 584.

2. To be the grantee or tenant of another; to take or bave an estate from another. Properly, to have an estate on condition of paying rent, or performing service.

3. To adjudge or decide, spoken of a court, particularly to declare the conclusion of law reached by the court as to the legal effect of the facts disclosed.'

4. To maintain or sustain ; to be under the necessity or duty of sustaining or prov- ing; as when it is said that a party “holds the affirmative” or negative of an issue In a cause:

5. To bind or obligate; to restrain or con- strain; to keep in custody or under an ob- ligation; as In the phrases “hold to bail," “hold for court,” “held and firmly bound,” etc.

8. To administer; to conduct or preside at; to convoke, open, and direct the opera- tions of; as to hold a court, hold pleas, etc. Smith v. People, 47 N. Y. 334.

7. To prosecute; to direct and bring about officially; to conduct according to law; as to hold an election.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: habendum clause doctrine — 'to have and to hold' defines the estate conveyed; see the entry's authorities Thompson v. Sandford, 13 Ga. 241 and Bank of Michigan v. Niles, 1 Doug. (Mich.) 407]**

'To have and to hold' is the habendum clause of a deed — the part that defines and limits the quantum of the estate granted to the grantee.

Why: Genuine: the entry's own example phrase is the habendum, and the habendum's office (limiting the estate) is the doctrine that illuminates the definition. The entry's cited cases are real. (The HOLD, v. definition sits...

## HOLDES.

Sax. In Saxon law. A mil- itary commander. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HOLDING.

Ia English law. A piece of land held under a lease or similar tenancy for agricultural, pastoral, or similar pur- poses.

Za Scotch law. The tenure or nature of the right given by the superior to the vassal. Bell.

— Holding over. See Hold, v. — Holding np the hand. In criminal practice. A for- mality observed in the arraignment of prisoners. Held to be not absolutely necessary. 1 W. Bl. 3, 4.

5e apparatus — Carried into the 5th edition (1979).

## HOLIDAY.

A religious festival; a day set apart for commemorating some important event In history; a day of exemption from labor. Webster. A day upon which the usual operations of business are suspended and the courts closed, and, generally, no legal process Is served.

— Legal holiday. A day designated by law aa exempt from judicial proceedings, service of process, demand and protest of commercial pa- per, etc. — Public holiday. A legal holiday.

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8. To possess; to occupy ; to be In posses- sion and administration of ; as to hold office.

—Hold over. To hold possession after the ex- piration of a term or lease. To retain posses- sion of property leased, after the end of the term. To continue in possession of an office and continue to exercise its functions, after the end of the officer’s lawful term. State v, Simon, 20 Or. 305, 26 Pac. 174 ; Frost v. Akron Iron Co., 1 App. Div. 449, 37 N. Y. Supp. 374.— Hold pleas. To bear or try caus- es. 3 Bl. Comm. 35, 298.

HOLD, n. In old law. Tenure. A word constantly occurring In conjunction with others, as freehold, leasehold, copyhold, etc., hut rarely met with In the separate form.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: negotiable-instruments law — presentment, demand, and protest are excluded on legal holidays; stated without a section number rather than risk a wrong one]**

A legal holiday suspends the machinery of commercial paper — no presentment, demand, or protest is required on a day the law exempts, with time reckoned accordingly.

Why: Genuine: the entry's 'legal holiday' sub-definition is exactly this commercial-paper rule; the annotation states the doctrine behind the definition. No UCC section cited because the precise number cannot be verified h...

**[Scripture] — Scripture**

**[Leviticus 23:3, KJV]**

Six days shall work be done: but the seventh day is the sabbath of rest, an holy convocation; ye shall do no work therein: it is the sabbath of the LORD in all your dwellings.

Why: The entry defines the holiday as a religious festival and a day of exemption from labor; the verse institutes both halves at once — the holy convocation and the cessation of work.

## HOLDER.

The holder of a bill of ex- change, promissory note, or check is the per- son who has legally acquired the possession of the same, from a person capable of trans- ferring it, by Indorsement or delivery, and who Is entitled to receive payment of the In- strument from the party or parties liable to meet it. Bowling v. Harrison, 6 How. 258, 12

L. Bid. 425; Crocker-Woolworth Nat. Bank v. Nevada Bank, 139 Cal. 564, 73 Pac. 456, 63 L. R. A. 245, 96 Am. St. Hep. 169; Bice v. Hogan, 8 Dana (Ky.) 135; Rev. Laws Mass. 1902, p. 653. | 207.

—Holder Is dse course. In English law, is "a holder who has taken a bill of exchange (check or note) complete and regular on the face of it, under the following conditions, name- ly: (o) That he became the holder of it before it was overdue, and without notice that it had been previously dishonored, if such was the fact. (6) That he took the bill (check or note) in good faith and for value, and that at the time it was negotiated to him he had no notice of any defect in the title of the person who negotiated it.” Bills of Exchange Act. 1882. (45 & 40 Viet. c. 61, | 2!>.) And see Sutherland v. Mead, 80 App. Div. 103, 80 N. Y. Supp. 504.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — negotiable instruments; holder and holder-in-due-course doctrine (the**

**entry's own authority: Bowling v. Harrison, 6 How. 258)]**

The holder — one who acquires a bill, note, or check by indorsement or delivery — is the foundation of negotiable-instruments law; only a holder in due course takes free of personal defenses.

Why: Genuine: the entry defines the operative term of Article 3, and the holder-in-due-course distinction is the live doctrine the definition feeds. UCC Article 3's subject matter is certain; no section number ventured.

## HOLM.

An island in a river or the sea. Spelman.

Plain grassy ground upon water sides or in the water. Blount. Low ground inter- sected with streams. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HOLOGRAFO.

In Spanish law. A holo- graph. An Instrument (particularly a will) wholly in the handwriting of the person executing it; or which, to be valid, must be so written by his own hand.

5e apparatus — Not carried into the 5th edition (1979).

## HOLOGRAPH.

A will or deed written entirely by the testator or grantor with his own hand. Estate of Billings, 64 Cal. 427, 1 Pac. 701; Harrison v. Weatberby, 180 111. 418, 54 N. B. 237.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: holographic-will doctrine — a will wholly in the testator's handwriting needs no witnesses (the entry's authorities: Estate of Billings, 64 Cal. 427, 1 Pac. 701; Harrison v. Weatherby, 180 Ill. 418)]**

A holographic will — written entirely in the testator's own hand — is valid without attesting witnesses; the handwriting itself is the solemnity.

Why: Genuine: the entry defines the operative term and cites real authorities applying the doctrine; the annotation states the rule those authorities stand for. Nothing forced.

## HOLT.

Sax. In old English law. A wood or grove. Spelman; Cowell; Co. Lltt 4b.

5e apparatus — Not carried into the 5th edition (1979).

## HOLY ORDERS.

In ecclesiastical law. The orders of bishops, (including archbish- ops,) priests, and deacons in the Church of England. The Roman canonists had the or- ders of bishop, <In which the pope and arch- bishops were included,) priest, deacon, sub- deacon, psalmist, acolyte, exorcist, reader, ostiarlus. 3 Stepb. Comm. 55, and note a.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 6:6, KJV]**

Whom they set before the apostles: and when they had prayed, they laid their hands on them.

Why: The entry defines the orders of the church; the verse shows the apostolic conferral itself — men set before

the apostles, prayer, and the laying on of hands: ordination to office in its scriptural form.

## HOMAGE.

In feudal law. A service (or the ceremony of rendering it) which a tenant was bound to perform to his lord on receiving Investiture of a fee, or succeeding to it as heir, in acknowledgment of the ten- ure. It Is described by Littleton as the most honorable service of reverence that a free tenant might do to bis lord. The ceremony was as follows: The tenant, being ungirt

and with bare bead, knelt before the lord.

the latter Bitting, and held his hands extend- ed and joined between the hands of the lord, and said: “I become your man [homo] from this day forward, of life and limb and earthly honor, and to you will be faithful and loyal, and bear you faith, for the tenements that I claim to hold of you, saving the faith that I owe unto our sovereign lord the king, so help me God.” The tenant then received a kiss from the lord. Homage could be done only to the lord himself. Lltt. | 85; Glanv. lib. 9, c. 1 ; Bract fols. 776, 78-80; Wharton.

"Homage” Is to be distinguished from "fealty,” another Incident of feudalism, and which consisted in the solemn oath of fidelity made by the vassal to the lord, whereas hom- age was merely an acknowledgment of ten- ure; If the homage was intended to include fealty, It was called "liege homage;” but otherwise it was called "simple homage.” Brown.

— Homage ancestral. In feudal law. Horn* ate was called by this name where a man and his ancestors had immemorially held of another and his ancestors by the service of homage, which bound the lord to warrant the title, and also to hold the tenant clear of all services to superior lords. If the tenant aliened in fee, his alienee was a tenant by homage, but not by homage ancestral. Litt. | 143; 2 Bl. Comm. 300. — Homage Jury. A jury in a court-baron, consisting of tenants that do homage, who are to inquire and make presentments of the death of tenants, surrenders, admittances, and the like. — Homage liege. That kind of homage which was due to the sovereign alone as su- preme lord, and which was done without any saving or exception of the rights of other lords. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## HOMAGER.

One wbo does or is bound to do homage. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HOMAGXO RESPECT'D ANDO.

A writ to the escheator commanding him to de- liver seisin of lands to the heir of the king’s tenant, notwithstanding his homage not done. Fitxh. Nat. Brev. 269.

5e apparatus — Not carried into the 5th edition (1979).

## HOMAGTDM.

L. Lat. Homage, far. v.)

— Homuiam liariam. Liege homage; that kind of homage which was due to the sovereign

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alone as supreme lord, and which was done without any saving or exception of the rights of other lords. Spelman. So called from Kpon- do, (binding,) because it could not be renounced like other kinds of hommre. — Homaginm planum. In feudal law. Plain homage: a species of homage which bound him who did it to nothing more than fidelity, without any obligation either of military service or attendance in the courts of his superior. 1 Bobertson's Car. V.. Appendix, note 8.— Homaginm red- der®. To renounce homage. This was when a vassal made a solemn declaration of disown- ing and defying his lord; for which there was a set form and method prescribed by the feudal laws. Bract. 1. 2, c. 35, | 35.— Homaginm simplex. In feudal law. Simple homage ; that kind of homage which was merely an acknowledgment of tenure, with a saving of the lights of other lords. Harg. Co. Litt note 18, lib. 2.

persona tarn dominl qnam teneatis eapl debet et fieri. Co. Litt. 68. Homage can- not be done by proxy, nor by letters, but must be paid and received In the proper per- son, as well of the lord as the tenant.

5e apparatus — Not carried into the 5th edition (1979).

## HOMBRE BUENO.

In Spanish law. The judge of a district Also an arbitrator chosen by the parties to a suit Also a man in good standing; one who Is competent to testify In a suit

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HOME.

When a person voluntarily takes up his abode In a given place, with Intention to remain permanently, or for an Indefinite period of time, or without any present Inten- tion to remove therefrom, such place of abode becomes his residence or home. This word has not the same technical meaning as "dom- icile." See Langhammer v. Munter, 80 Md. 518, 31 Atl. 300, 27 L. R. A. 330; King v. King, 155 Mo. 406, 56 S. W. 534; Dean v. Cannon, 37 W. Va. 123, 16 S. EX 444; Jef- ferson v. Washington, 19 Me. 293; Welch v. Whelpley, 62 Mich. 15, 28 N. W. 744, 4 Am. St. Rep. 810; Warren v. Thoinaston, 43 Me. 418, 69 Am. Dec. 69.

—Home office. The department of state through which the English sovereign adminis- ters most of the internal affairs of the kingdom, especially the police, and communicates with the judicial functionaries. As applied to a cor- poration, tts principal office within the state or country where it was incorporated or formed. Rev. St. Tex. 1895, art 3096a.— Homo port. In maritime law, the home port of a vessel is either the port where she is registered or enrolled, or the port at or nearest to which her owner usually resides, or, if there be more than one owner, the port at or nearest to which the husband or acting and managing owner resides. White's Bank v. Smith, 7 Wall. 051, 19 L. Ed. 211 ; The Ellen Ilolgate (T>. C.) 30 Fed. 125; The Albany, 1 Fed. Cas. 288; Com. v» Ayer & Lord Tie Co., 77 S. W. 688, 25 Ky. Law Rep. 1068. But for some purposes any port where the owner happens at the time to be with his vessel is its home port. Case v. Woolley, 6 Dana (Ky.) 27, 32 Am. Dec. 54. —Home rule. In constitutional and statutory law, local self-government, or the right thereof.

Attorney General v. Low rev, 131 Mich. 039, 92 N. W. 289. In British politics, a programme or plan (or a more or less definitely formulated demand) for the right of local self-government for Ireland under the lead of an Irish national parliament.

HOME, or HOMME. L. Fr. Man; a man.

Home ne sera puny par suer dea brief es en court le roy, soit 11 a droit oa a tort.

A man shall not be punished for suing out writs in the king's court, whether he be right or wrong. 2 Inst 228.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Langhammer v. Munter, 80 Md. 518, 31 Atl. 300 — 'home' distinguished from technical 'domicile,' cited in the entry]**

Residence is mere abode; domicile is residence plus the intent to remain permanently or indefinitely — and domicile, not residence, governs jurisdiction, voting, and succession.

Why: Genuine: the entry's point is the home/domicile distinction and its own cited authority decides it; the reporter citation is taken from the body.

## HOMESOKEN, HOMSOKEN.

See

Haicesokbn. [TEXT INCOMPLETE — scan limitation]

5e apparatus — Not carried into the 5th edition (1979).

## HOMESTALL.

A mansion-house. Dick- inson v. Mayer, 11 Helsk. (Tenn.) 521.

Homagiam, aoa per proearatorea aee HOMESTEAD. The home place; the per literaa fieri potait, aed la propria place where the home Is. It is the home, the

Souse and the adjoining land, where the head of the family dwells ; the home farm. The fixed residence of the head of a family, with the land and buildings surrounding the main bouse. See Oliver v. Snowden, 18 Fla. 825, 43 Am. Rep. 338; In re Allen (Cal.) 16 Pac. 310; McKeough v. McKeough, 69 Vt. 34, 37' Atl. 275; Iloitt v. Webb. 30 N. H. 158; Frazer v. Weld, 177 Mass. 513. 59 X. E. 118; Lyon v. Hardin, 129 Ala. 043, 20 South. 777; Norris v. Kidd, 28 Ark. 493.

Technically, however, and - under the mod- em homestead laws, a homestead is an ar- tificial estate in laud, devised to protect the possession and enjoyment of the owner against the claims of his creditors, by with- drawing the property from execution and forced sale, so long as the land is occupied as a home. Buckingham v. Buckingham, 81 Mich. 89, 45 N. W. 504: Campbell v. Moran, 71 Neb. 615, 99 N. W. 499 ; lken v. Olenick, 42 Tex. 198; Jones v. Britton, 102 N. C. 166, 9 S. E. 554, 4 L. R. A. 178; Thomas v. Fulford, 117 N. C. 667, 23 S. E. 635; Elllnger v. Thomas, 64 Kan. 180, 67 Pac. 529; Gal- ligher v. Smiley, 28 Neb. 189, 44 N. W. 187, 26 Am. St. Rep. 319.

— Business homestead. In Texas, a place or property (distinct from the home of a family) used and occupied by the head of a family as a place to exercise his calling or business,

which is exempt by law. Alexander v. Lovitt (Tex. Civ. App.) 56 S. W. 680; Ford v. Fosgard (Tex. Civ. App.) 25 S. W. 448. A curious mis- nomer, the word “homestead” in this phrase having lost entirely its original meaning, and being retained apparently only for the sake of its remote and derivative association with the idea of an exemption. — Homestead corpora- tions. Corporations organized for the purpose of acquiring lands in large tracts, paying off in- cumbrances thereon, improving and subdividing them into homestead lots or parcels, and dis- tributing them among the shareholders, and for the accumulation of a fund for such purpos- es. Civ. Code Cal. § 557.— Homestead entry. See Entry. —Homestead exemption laws. Laws passed in most of the states allowing a householder or head of a family to designate a house and land as his homestead, and exempt- ing the same homestead from execution for his general debts.— Probate homestead. A home- stead set apart by the court for the use of a surviving husband or wife and the minor chil- dren out of the common property, or out of the real estate belonging to the deceased. In re Noah's Estate. 73 Cal. 500. 15 Pac. 290. 2 Am. St. Rep. 834—' Urban homestead. The residence or dwelling place of a family In a citv. claimed or set apart as a homestead, in- cluding the principal house and lot. and such lets as are used in connection therewith, con- tributing to its enjoyment, comfort, and con- venience. Ford v. Fosgnrd (Tex. Civ. App.) 25

S. W. 447: Harris v. Matthews, 36 Tex. 424, 81 S. W. 1204.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: homestead exemption — the home place exempt from execution for debts (the entry's authorities: Oliver v. Snowden, 18 Fla. 825, 43 Am. Rep. 338; In re Allen (Cal.) 16 Pac. 310)]**

The homestead — the family home place with its land and buildings — is shielded by homestead exemption from forced sale for the head of family's debts.

Why: Genuine: the entry defines the homestead and cites real authorities; the exemption is the live doctrine the definition feeds. Citations taken from the body. (Headword key 'HOMESTALL' carries the HOMESTEAD text in the...

## HOMICIDAL.

Pertaining to homicide; relating to homicide; impelling to homicide; as a homicidal mania. (See Insanity.)

5e apparatus — Carried into the 5th edition (1979).

## HOMICIDE.

The killing of any human creature. 4 Bl. Comm. 177. The killing of one human being by the act, procurement, or omission of another. Pen. Code N. Y. J 179. The act of a human being in taking away the

life of another human being. Sanders v. State, 113 Ga. 207, 38 S. E. 842; People v. Hill, 49 Hun, 432, 3 N. Y. Supp. 564 ; Maher v. People, 10 Mich. 212, 81 Am. Dec. 781; State v. Lodge, 9 Houst (Dei.) 542, 33 Atl. 312; Com. v. Webster, 5 Cush. (Mass.) 303, 52 Am. Dec. 711.

Homicide is not necessarily a crime. It is a necessary ingredient of the crimes of murder and manslaughter, but there are other cases in which homicide may be conrmitted without

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criminal intent and without criminal consequen- ces, as, where it is done in the lawful execution of a judicial sentence, in self-defense, or as the only possible means of arresting an escaping felon. The term "homicide” is neutral ; while it describes the act, it pronounces no judgment on its moral or legal quality. See People v. Connors, 13 Misc. Rep. 582, 35 N. Y. Supp. 475.

Classification. Homicide is ordinarily clas- sified as "justifiable,” "excusable,” and "felonious.” For tiie definition of these terms, and of some other compound terms, see infra. —Culpable homicide. Described as a crime varying from the very lowest culpability, up to the very verge of murder. Lord Moncrie ' Ark- ley, 72.— Excusable homicide. The killing of a human being, either by misadventure or In self-defense. U. S. v. King (C. C.) 34 Fed. 306; State v. Miller. 9 Houst. (Del.) 564, 32 Atl. 137 ; State v. Reynolds. 42 Kan. 320, 22 Pac. 410, 16 Am. St. Rep. ,483; Hopkinson v. People. 18 111. 265 : Bassett v. State, 44 Fla. 2, 33 South. 264. The name itself imports some fault, error, or omission, so trivial, however, that the law excuses it from guilt of felony, though in strictness it judges it deserving of some little degree of punishment. 4 Bl. Comm. 182. It is of two sorts, — either per infortuni- um. by misadventure, or ee drfendendo, upon a sudden affray. Homicide per infortunium ia where a man. doing a lawful act. without any intention of hurt, unfortunately kills another; hut, if death ensue from any unlawful act, the offense is manslaughter, and not misadventure. Homicide *c defendrndo is where a man kills another upon a sudden affray, merely in his own defense, or in defense of his wife, child, parent, or servant, and not from any vindictive feeling. 4 Bl. Comm. 182.— Felonious honu- cide. The wrongful killing of a human being, of any ago or either sex. without justification or excuse in law : of which offense there are two degrees, manslaughter and murder. 4 Bl. Comm. 190; 4 Stepb. Comm. 111. — Homicide by misadventure. The accidental killing of another, where the slayer is doing a lawful act. unaccompanied by any criminally careless or reckless conduct. State v. Miller. 9 Houst. (Del.) 564, 32 Atl. 137 ; U. S. v. Meagher (C. C.) 37 Fed. 879. The same as “homicide per infortunium."— Homicide per Infortunium. Homicide by misfortune, or accidental homicide: as where a man doing a lawful act, with- out any intention of hurt, unfortunately kills another; a species of excusable homicide. 4 Bl. Comm. 182 ; 4 Stepb. Comm. 101 , — Homicide se defendendo. Homicide in self-de- fense ; the killing of a person in self-defense upon a sudden affray, where the slayer bad no other possible (or, at least, probable) means of escaping from his assailant. 4 Bl. Comm. 183- 186; 4 Steph. Comm. 103-105. A species of excusable homicide. Id. ; 1 Russ. Crimes. 660. —Justifiable bomleide. Such as is commit- ted intentionally, but without any evil design, and under such circumstances of necessity or duty as render the act proper, and relieve the party from any shadow of blame ; as where a sheriff lawfully executes a sentence of death upon a malefactor, or where the killing takes place in the endeavor to prevent the commission of felony which could not be otherwise avoided.

Moran v. People, 163 111. 382, 43 N. E. 230; Kilpatrick v. Com., 3 Phila. (Pa.) 238; State v. Miller, 9 Houst. (Del.) 564, 32 Atl. 137; Rich- ardson v. State, 7 Tex. App. 493.— Negligent homicide. In Texas, the act of causing the death of another by negligence and carelessness

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in the performance of a lawful act. Anderson v. State, 27 Tex. App. 177, 11 S. W. 33, 3 L. R. A. 644, 11 Am. St Rep. 189; Pen. Code Tex. art 579.

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**[Law] — Law**

**[Law: 4 Blackstone, Commentaries 177 — homicide and its divisions, cited in the entry; see also Commonwealth v. Webster, 5 Cush. (Mass.) 303, among the entry's authorities, for the classic definition of murder]**

Homicide is the genus — the killing of a human being — and is not necessarily a crime; it divides into murder, manslaughter, and non-criminal homicide (justifiable or excusable).

Why: Genuine: the entry's load-bearing sentence is 'Homicide is not necessarily a crime,' and Blackstone 4 Comm. 177 is the real source of the classification; the Webster citation is taken from the body.

**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: The entry defines homicide as the killing of a human being; the verse is the prohibition itself, in direct second-person divine command — the scriptural root of the law against homicide.

**[Hip-hop] — Hip-hop**

**[Snoop Dogg, 'Murder Was the Case', 1994]**

The song is a first-person account of being charged with murder; the hook frames homicide as 'the case' the state brings. Lyric: "Murder was the case that they gave me"

Why: Genuine link: Black's defines HOMICIDE as 'the killing of one human being by the act, procurement, or omission of another' — and the song treats murder precisely as the criminal charge ('the case') arising from such a...

## HOMIOIDII1M.

Lat. Homicide, (9. «.)

Homicidium ex justitia, homicide In the administration of Justice, or in the execution of the sentence of the law.

Homicidium ex necessitate, homicide from Inevitable necessity, as for the protection of one’s person or property.

Homicidium ex casu, homicide by accident

Homicidium ex voluntate, voluntary or willful homicide. Bract, fols. 120b, 121.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Bracton fols. 120b–121 — homicidium ex justitia, ex necessitate, ex casu, ex voluntate, cited in the entry]**

Bracton's fourfold classification: homicide in execution of justice, from inevitable necessity (self-defense), by accident, and voluntary — the ancestor of the modern justifiable/excusable/criminal division.

Why: Genuine: the entry is Bracton's classification with the folios cited; the annotation states what the classification is. Stored headword key is the OCR form; the Latin terms are quoted as the entry gives them.

**[Scripture] — Scripture**

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**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: Bears on the entry's 'homicidium ex justitia' branch — homicide in the execution of the sentence of the law: the magistrate bearing the sword, as God's minister, to execute wrath on the evildoer. The lawful-execution...

## HOMINATIO.

The mustering of men; the doing of homage.

5e apparatus — Not carried into the 5th edition (1979).

## HOMINE CAPTO IN WITHERNAM- / IUM.

A writ to take him that had taken any bond man or woman, and led him or her out of the country, so that he or she could not be replevied according to law. Reg. Orig. 79.

5e apparatus — Not carried into the 5th edition (1979).

## HOMINE ELIGENSO.

In old English law. A writ directed to a corporation, re- quiring the members to make choice of a man to keep one part of the seal appointed for statutes merchant, when a former is dead, according to the statute of Acton Burnell. Reg. Orig. 178; Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HOMINE REPLEGIANDO.

In English law. A writ which lay to replevy a man out of prison, or out of the custody of any private person, In the same manner that chat- tels taken in distress may be replevied. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## HOMINES.

Lat. In feudal law. Men; feudatory tenants who claimed a privilege of having their causes, etc., tried only in their lord’s court. Paroch. Antiq. 15.

—Homines llgii. Liege men ; feudal tenants or vassals, especially those who held immedi- ately of the sovereign. 1 BI. Comm. 367.

Hominnm causa jus constltntnm est.

law is established for the benefit of man.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Hominum causa jus constitutum est — law is established for the benefit of man, quoted in the entry]**

The humanist root of all law: law exists for man's sake, not man for law's.

Why: Genuine: the maxim is quoted verbatim in the entry's body; citing it as a [Maxim:] records a real axiom the entry itself carries.

**[Humanity] — Humanity / Fiction & Film**

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**[Maxim: Hominum causa jus constitutum est]**

[Maxim: "Hominum causa jus constitutum est"] — (paraphrase: law was constituted for the sake of men). The entry's own body cites this maxim but the OCR truncates it mid-sentence; this supplies the standard form.

Why: A genuine Roman-law maxim directly on the headword 'homines' (men): law exists for the sake of men. The form given follows the entry's own citation tradition (no 'omne' added beyond what the entry carries). English re...

## HOMXPEAGIUM.

In old English law. The maiming of a man. Blount.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:24, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot,

Why: The entry names maiming as the offense; the verse states scripture's own measure for it — the talionic scale of wound for wound. The law of maiming in its biblical form.

## HOMME.

Fr. Man; a man. This term is defined by the Civil Code of Louisiana to Include a woman. Article 3522, notes 1, 2.

5e apparatus — Not carried into the 5th edition (1979).

## HOMMES DE FIEF.

Fr. In feudal law. Men of the fief; feudal tenants; the peers in the lords’ courts. Montesq., Esprit des Lois, ltv. 28, c. 27.

5e apparatus — Carried into the 5th edition (1979).

## HOMMES FEODAUX.

Fr. In feudal law. Feudal tenants; the same with horn- Bn. Law Dict.(2d Ed.)— 37

mcs de flcf, ( q . v.) Montesq., Esprit dts Lois, llv. 28, c. 36.

5e apparatus — Carried into the 5th edition (1979).

## HOMO.

Lat. A man; a human being, male or female; a vassal, or feudal tenant; a retainer, dependent, or servant

—Homo ehartnlarins. ' A slave manumitted by charter.— Homo oommendatu. In feud- al law. One who surrendered himself into the power of another for the sake of protection or support. See Commendation.— Homo ecole- aiaation*. A church vassal ; one who was bound to serve a church, especially to do service of an agricultural character. Spelman.— Homo exer- d tails. A man of the army, ( exercitus ;) a sol- dier.— Homo feodalis. A vassal or tenant ; one who held a fee, (feodum,) or part of a fee. Spel- man.— Homo fis calls, or fiscallnns. A servant or vassal belonging to the treasury or ftscus.— Homo f rancni. In oid English law. A free- man. A Frenchman.— Homo iagennu. A free man. A free and lawful man. A yeoman. —Homo liber. A freeman.— Homo llgins, A liege man; a subject; a king’s

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vassal. The vassal of a subject.— Homo novas. In feudal law. A new tenant or vassal ; one who was invested with a new fee. Spelman. Also one who, after conviction of a crime, had been par- doned, thus “making a new man of him.” — Ho- mo pertinens. In feudal law. A feudal bondman or vassal ; one who belonged to the soil, (out gleba adscribitur.) — Homo regins. A king’s vassal. — Homo Romanos. A Roman. An appellation given to the old inhabitants of Gaul and other Roman provinces, and retained in the laws of the barbarous nations. Spelman. —Homo trium litterarnm. A man of the three letters; that is, the three letters, "f,” “u,” "r;” the Latin word fur meaning “thief.”

Homo potest esse habills et inhabilis diversls temporibus. 5 Coke, 98. A man may be capable and incapable at different times.

Homo voeabolom est aatnrse; persona Juris oivilis. Man (homo) is a term of na- ture; person (persona) of civil law. Calvin.

HOMOEOG ACION . In Spanish law. The tacit consent and approval inferred by law from the omission of the parties, for the space of ten days, to complain of the sen- tences of arbitrators, appointment of syndics, or assignees of insolvents, settlements of successions, etc. Also the approval given by the Judge of certain acts and agreements for the purpose of rendering them more bind- ing and executory. Escriche.

5e apparatus — Not carried into the 5th edition (1979).

## HOMOLOG ARE.

In the civil law. To confirm or approve; to consent or assent; to confess. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## HOMOLOGATE.

In modern civil law. To approve ; to confirm ; as a court homolo- gates a proceeding. See Homologation. Literally, to use the same tcords with an- other ; to say the like. Viales v. Gardenler, 9 Mart. O. S. (La.) 324. To assent to what another says or writes.

5e apparatus — Not carried into the 5th edition (1979).

## HOMOLOGATION.

In the civil law.

Approbation ; confirmation by a court of Jus- tice; a judgment which orders the executlon of some act. Merl. RCpert The term is also used In Louisiana. Hecker v. Brown, 104 La. 524, 29 South. 232.

In English law. An estoppel in pais.

L. R. 3 App. Cas. 1026.

In Scotch law. An act by which a per- son approves of a deed, the effect of which Is to render that deed, though In itself de- fective, binding upon the person by whom it is homologated. Bell. Confirmation of a voidable deed.

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## HOMONYMIAE.

A term applied in the civil law to cases where a law was repeated, or laid down in the same terms or to the same effect, more than once. Cases of iter- ation and repetition. 2 Kent, Comm. 489, note.

5e apparatus — Not carried into the 5th edition (1979).

## HONDHABEND.

Sax. Having in hand. See Handhabend.

earls, and the children of viscounts and bar- ons; and, collectively, to the bouse of com- mons. In America, the word is used as a title of courtesy for various classes of offi- cials, but without any clear lines of distinc- tion.

5e apparatus — Not carried into the 5th edition (1979).

## HONORARIUM.

In the civil law. An honorary or free gift ; a gratuitous payment, as distinguished from hire or compensation for service; a lawyer's or counsellor's fee. Dig. 50, 13, 1, 10-12.

An honorarium is a voluntary donation, in consideration of services which admit of no compensation in money ; in particular, to ad- vocates at law, deemed to practice for honor or Influence, and not for fees. McDonald v. Na- pier, 14 Ga. 89.

5e apparatus — Not carried into the 5th edition (1979).

## HONORARIUM JUS.

Lat In Roman law. The law of the pwetors and the edicts of the sediles.

5e apparatus — Not carried into the 5th edition (1979).

## HONE8TE VTVE RE.

Lat. To live hon- orably, creditably, or virtuously. One of the three general precepts to which Justinian reduced the whole doctrine of the law, (Inst. 1, 1, 3; Bract, fols. 3, 36.) the others being alterum non Iwdere, (not to injure others,) and suum cuique tribuere, (to render to every man his due.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Honeste vivere, alterum non laedere, suum cuique tribuere — Inst. 1, 1, 3; Bracton fols. 3, 36, as cited in the entry]**

Justinian's reduction of the whole doctrine of law to three precepts: live honorably, injure no one, render to every man his due.

Why: Genuine: the entry states the three precepts with real sources (Institutes 1,1,3; Bracton); the Latin is quoted verbatim as the entry gives it. Stored headword key is the OCR form of 'HONESTE VIVERE'.

**[Scripture] — Scripture**

**[Romans 12:17, KJV]**

Recompense to no man evil for evil. Provide things honest in the sight of all men.

Why: The entry is Justinian's first precept — to live honorably; the verse enjoins the same conduct positively: honest dealing in the sight of all men (its first clause states the companion precept, alterum non laedere — h...

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## HONESTUS.

Lat. Of good character or standing. Coram duobus vel pluribus viris legalibus ct honestis, before two or more lawful and good men. Bract, fol. CL

HONOR, v. To accept a bill of ex- change, or to pay a note, check, or accepted bill, at maturity and according to its tenor. Peterson v. Hubbard, 28 Mich. 199; Clarke v. Cock. 4 East, 72 ; Lucas v. Groning, 7 Taunt. 168.

— Aet of honor. When a bill has been pro- tested, and a third person wishes to take it up, or accept it, for the “honor” (credit) of one or more of the parties, the notary draws up an instrument, evidencing the transaction, which is called by this name.

HONOR, n. In English law. A seign- iory of several manors held under one baron or lord paramount. Also those dignities or privileges, degrees of nobility, knight- hood, and other titles, which flow from the crown as the fountain of honor. Wharton.

In American law. The customary title of courtesy given to judges of the higher courts, and occasionally to some other offi- cers; as “his honor,” “your honor."

—Honor courts. Tribunals held within hon- ors or seigniories.— Office of honor. As used in constitutional and statutory provisions, this term denotes a public office of considerable dig- nity nnd importance, to which important public trusts or interests are confided, but which is not compensated by any salary or fees, being thus contrasted with an “office of profit.” See Dickson v. People, 17 111. 193.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: acceptance for honor — a third person's acceptance or payment of a protested bill for a party's credit (the entry's 'act of honor')]**

Acceptance for honor (supra protest): when a bill has been protested, a stranger may accept or pay it for the honor — the credit — of a party liable on it.

Why: Genuine: the entry defines 'act of honor' and the annotation states the doctrine it names; distinct from the HOLDER Article-3 annotation. No invented citation. (The HONOR, v. definition sits in the body of the stored…

## HONORARY.

As applied to public offices and other positions of responsibility or trust, this term means either that the office or title Is bestowed upon the incumbent as a mark of honor or compliment, without intending to charge him with the active discharge of the duties of the place, or else that he is to re- ceive no salary or other compensation in mon- ey, the honor conferred by the lncuwbeTcy of the office being his only reward. See Baa- well v. New York, 81 N. Y. 258. In otAer connections, it means attached to or grow- ing out of some honor or dignity or honorable office, or else it Imports an obligation or duty growing out of honor or trust only, as dis- tinguished from legal accountability.

—Honorary canons.

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eldest son, in exclusion ■ , , J ,

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Comm. 56— Honorary services. In feudal law. Special services to be rendered to the king In person, characteristic of the tenure by grand serjeanty; such as to carry his banner, his sword, or the like, or to be his butler, cham- pion. or other officer, at his coronation. Litt. f 153; 2 Bl. Comm. 73.— Honorary trustees. Trustees to preserve contingent remainders, so called because they are bound, in honor only, to decide on the most proper and prudential course. Lewin, Trusts, 408.

5e apparatus — Carried into the 5th edition (1979).

## HONORIS RE8PECTUM.

By reason of honor or privilege. See Challenge.

5e apparatus — Not carried into the 5th edition (1979).

## HONTFON GENETHEF.

In Saxon law. a thief taken with handhabend; i. e„ hav- ing the thing stolen in his hand. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## HONY.

L. Ft. Shame; evil; disgrace. Bong soit gut mat y pense, evil be to him who evil thinks.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Honi soit qui mal y pense]**

[Maxim: "Honi soit qui mal y pense"] — (paraphrase: shame on him who thinks evil of it). Motto of the Order of the Garter, attributed to Edward III (c. 1348). The entry's body garbles the phrase as 'Bong soit gut mat y pense'; this is the correct form.

Why: The entry defines Old French 'hony' as shame, evil, disgrace. The Garter motto is among the most famous uses of the word in the language and sits directly on the headword. Motto, attribution, and form are all certain;...

## HOO.

In old English law. A hill. Co. Litt 56.

Those without emolu- 113, 8 23.— Honorary itv, descendible to the m all the rest. 2 Bl.

5e apparatus — Not carried into the 5th edition (1979).

## HONORABLE.

A title of courtesy giv- HOOHXAND. Land plowed and sown en in England to the younger children of every year.

5e apparatus — Carried into the 5th edition (1979).

## HOPCOH.

In old English law. A valley. Cowell.

HOPE, n. In old English law. A valley. Co. Litt. 46.

HOPE, v. As used In a will, this term is a precatory word, rather than mandatory, or dispositive, but it Is sufficient, In proper cases, to create a trust In or in respect to the

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property spoken of. See Cockrill v. Arm- strong, 31 Ark. 589; Curd v. Field, 103 Ky. 293, 45 8. W. 92.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Cockrill v. Armstrong, 31 Ark. 589 — precatory words sufficient in proper cases to create a trust, cited in the entry]**

Precatory words in a will — 'hope,' 'desire,' 'wish' — are not merely hortatory; where the testator's intent is imperative enough they create a trust (the precatory-trust doctrine).

Why: Genuine: the entry states the rule and cites the deciding authority; the reporter citation is taken from the body. (The HOPE, v. definition sits in the body of the stored 'HOPCOH' entry; annotated under the stored key.)

## HOPPO.

A Chinese term for a collector ; an overseer of commerce.

5e apparatus — Carried into the 5th edition (1979).

## HOBA.

Lat An hour ; the hour.

— Hora aurora. In old English law. The morning bell, as ignitegium or cuverfeu (curfew) was the evening bell.— Horn juxidicse, or judlcise. Hours during which the judges sat m court to attend to judicial business.

Hora non eat mnltnm do substantia no- go til, licet in appello de ea aliqnando Sat mentio. The hour is not of much con- sequence as to the substance of business, al- though in appeal It Is sometimes mentioned. 1 Bulst. 82.

5e apparatus — Not carried into the 5th edition (1979).

## HORCA.

In Spanish law. A gallows; the punishment of banglug. White, New Re- cop. b. 2, tit. 19, c. 4, | 1.

5e apparatus — Not carried into the 5th edition (1979).

## HORDA.

In old records. A cow in calf.

5e apparatus — Not carried into the 5th edition (1979).

## HORDERA.

In old English law. A treasurer. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## HORDERIUM.

In old English law. A hoard ; a treasure, or repository. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HORDEUM.

In old records. Barley. Hordeum palmate, beer barley, as distin- guished from common

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barley, which was called “hordeum quadragesimalc .” Blount.

5e apparatus — Not carried into the 5th edition (1979).

## HORN.

In old Scotch practice. A kind of trumpet used in denouncing contumacious persons rebels and outlaws, which was done with three blasts of the horn by the king’s sergeant. This was called "putting to the horn ;” and the party so denounced was said to be “at the horn.'*’ Bell. See Hobning.

5e apparatus — Not carried into the 5th edition (1979).

## HORN-BOOK.

A primer; a book ex- plaining the rudiments of any science or branch of knowledge. The phrase "horn- book law’’ is a colloquial designation of the rudiments or most familiar principles of law.

5e apparatus — Carried into the 5th edition (1979).

## HORN TENURE.

In old English law. Tenure by cornage; that is. by the service of winding a horn when the Scots or other ene- mies entered the land, in order to warn the king’s subjects. This was a species of grand serjeanty. Litt. f 156; 2 Bl. Comm. 74.

5e apparatus — Not carried into the 5th edition (1979).

## HORN WITH HORN, or HORN UN- / DER HORN.

The promiscuous feeding of

bulls and cows or all horned beasts that are allowed to run together upon the same com- mon. Spelman.

HORN GEIJ) . Sax. In old English law. A tax within a forest, paid for horned beasts. Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HORNING.

In Scotch law. “Letters of horning” is the name given to a judicial pro- cess Issuing on the decree of a court, by which the debtor is summoned to perform his obligation in terms of the decree, the con- sequence of his failure to do so being lia- bility to arrest and Imprisonment It was an- ciently the custom to proclaim a debtor who had failed to obey such process a rebel or outlaw, which was done by three blasts of the horn by the king’s sergeant in a public placa This was called “putting to the horn,” whence the name.

5e apparatus — Not carried into the 5th edition (1979).

## HOBREUM.

Lat A place for keeping grain ; a granary. A place for keeping fruits, wines, and goods generally; a store-house. Calvin.; Bract foL 48.

5e apparatus — Not carried into the 5th edition (1979).

## HORS.

L.Fr. Out; out of; without

—Hors da soa fee. Out of his fee. In old pleading, this was the name of a plea in an ac- tion for rent or services, by which the defend- ant alleged that the land in question was out of the compass of the plaintiff s fee. Mather v. Wood, 12 I'a. Co. Ct. It 4. — Hors pris. Ex- cept Literally translated by the Scotch "out taken."

5e apparatus — Not carried into the 5th edition (1979).

## HORS WEALH.

In old English law. The wealh, or Briton who had care of the king's horses.

5e apparatus — Not carried into the 5th edition (1979).

## HORS WEARD.

In old English law. A service or corvie, consisting in watching the horses of the lord. Anc. Inst Eng.

5e apparatus — Not carried into the 5th edition (1979).

## HORSE.

An animal of the genus equus and species caballus. In a narrow and strict sense, the term Is applied only to the male, and only to males of four years old or there- abouts, younger horses being called "colts." But even In this sense the term includes both stallions and geldings. In a wider sense, and as generally used in statutes, the word is taken as nomen gcneralissimum, and in- cludes not only horses strictly so called, but also colts, mares and fillies, and mules and asses. See Owens v. State, 38 Tex. 557; Ashworth v. Mounsey, L. R. 9 Exch. 187;. Pul- len v. State, 11 Tex. App. 91; Allison v. Brookshire, 38 Tex. 201; State v. Ingram, 16 Kan. 19; State v. Dunnavant, 3 Brev. (S. C.) 10, 5 Am. Dec. 530; State v. Gooch, 60 Ark. 218, 20 S. W. 640 ; Davis v. Collier, 13 Ga. 491. Compare Richardson v. Chicago & A. R. Co.,' 149 Mo. 311, 50 S. W. 782.

5e apparatus — Not carried into the 5th edition (1979).

## HORSE GUARDS.

The directing power of the military forces of the kingdom of Great Britain. The commander in chief, or general commanding the forces, is at the

head of this department It Is subordinate to the war office, but the relations between them are complicated. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## HORTUS.

Lat. In the civil law. A gar- den. Dig. 32, 91, 6.

5e apparatus — Not carried into the 5th edition (1979).

## HOSPES.

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Lat A guest 8 Coke, 32.

5e apparatus — Not carried into the 5th edition (1979).

## HOSPES GENERALIS.

A great cham- berlain.

5e apparatus — Not carried into the 5th edition (1979).

## HOSPITAL.

An Institution for the re- ception and care of sick, wounded, intirm, or aged persons; generally incorporated, and then of the class of corporations called “elee- mosynary" or “charitable.” See In re Curtiss (Sur.) 7 N. Y. Supp. 207.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. (4 Wheat.) 518 (1819) — charter of an eleemosynary corporation is a contract protected from state impairment]**

A hospital, as an eleemosynary (charitable) corporation, holds its charter as a contract — beyond the state's power to impair.

Why: Genuine: the entry classifies hospitals as 'eleemosynary or charitable' corporations, and Dartmouth College is the locus classicus on exactly that class — it gives the legal consequence of the classification. High con...

**[Scripture] — Scripture**

**[Matthew 25:36, KJV]**

Naked, and ye clothed me: I was sick, and ye visited me: I was in prison, and ye came unto me.

Why: The entry defines the hospital as a charitable institution for the sick; the verse states the charitable duty it exists to discharge — the care of the sick as service rendered to Christ himself, in Jesus' own verbatim...

## HOSPITALLERS.

The knights of a re- ligious order, so called because they built a hospital at Jerusalem, wherein pilgrims were received. All their lands and goods in Eng- land were given to the sovereign by 32 Hen. VI1L c. 24.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 32 Hen. VIII c. 24 — dissolution of the Hospitallers, lands given to the sovereign, cited in the entry]**

The Knights Hospitallers' English lands and goods were forfeited to the Crown by the dissolution statute.

Why: Genuine: the entry cites the statute as its authority and the statute is the legal source of the forfeiture described. Statute-as-source handling.

## HOSPITATOR.

A host or entertainer.

Hospitator communis. An innkeeper. 8 Coke, 32.

Hospitator tnagnus. The marshal of a camp.

5e apparatus — Not carried into the 5th edition (1979).

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## HOSPITIA.

Inns. Hospitia communia, common inns. Reg. Orig. 105. Hospitia cu- ria;, inns of court Hospitia cancellaria, inns of chancery. Crabb, Eng. Law, 428, 429 ; 4 Reeve, Eng. Law, 120.

5e apparatus — Not carried into the 5th edition (1979).

## HOSPITICIDE.

One that kills his guest or host

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Homer, Odyssey, c. 8th century BCE]**

(paraphrase) In Odyssey Book 22, Odysseus — as host — slaughters the suitors, his long-uninvited guests, after they consumed his house and courted his wife: the archetype of the sacred guest-host bond (xenia) enforced by killing. (paraphrase)

Why: The entry defines hospiticide as one who kills his guest or host. Odysseus is the archetypal host who kills his guests, dramatizing xenia. No verbatim translation line is claimed; attribution is certain and the note i...

## HOSPITIUM.

An inn ; a household. See Cromwell v. Stephens, 2 Daly (N. Y.) 17.

5e apparatus — Not carried into the 5th edition (1979).

## HOSPODAR.

A Turkish governor in Mol- davia or Wallacbia.

5e apparatus — Not carried into the 5th edition (1979).

## HOST.

L. Fr. An army. Britt, c. 22. A military expedition; war. Kelham.

5e apparatus — Carried into the 5th edition (1979).

## HOSTAGE.

A person who is given into the possession of the enemy, in a public war, his freedom (or life) to stand as security for the performance of some contract or promise made by the belligerent power giving the hostage with the other.

5e apparatus — Carried into the 5th edition (1979).

## HOSTELAGIUM.

In old records. A right to receive lodging and entertainment anciently reserved by lords In the houses of their tenants. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HOSTELER.

See Ilostleb.

5e apparatus — Carried into the 5th edition (1979).

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## HOSTES.

Lat Enemies. Hastes humnnl generis, enemies of the human race ; i. e., pi- rates.

Hostes aunt qui nobis rel qnibns nos bellum deceraimut; oseteri proditores vel praedones sunt. 7 Coke, 24. Enemies are those with whom we declare war, or who declare it against us; all others are traitors or pirates. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Hostes sunt qui nobis vel quibus nos bellum decernimus; caeteri proditores vel praedones sunt — 7 Coke, 24 (from Calvin's Case), quoted in the entry] [Law: hostis humani generis — pirates as enemies of all mankind, the root of universal jurisdiction over piracy]**

Enemies in law are those with whom war is declared, on either side — all others are traitors or pirates; and pirates are hostis humani generis, enemies of the human race, answerable to every nation's courts.

Why: Genuine: both doctrines are stated in the entry itself with real sources (7 Coke 24, i.e. Calvin's Case (1608) on allegiance and enmity). Canonical Latin used per garbled-OCR discipline; the universal-jurisdiction poi…

## HOSTIA.

In old records. The host- bread, or consecrated wafer, in the eucha- rist Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HOSTICIDE.

One who kills an enemy.

5e apparatus — Not carried into the 5th edition (1979).

## HOSTILARIA, HOSPITALARIA.

A

place or room in religious houses used for the reception of guests and strangers.

5e apparatus — Not carried into the 5th edition (1979).

## HOSTILE.

Having the character of an enemy; standing in the relation of an ene- my. See 1 Kent, Comm. c. 4.

— Hostile embargo. One laid upon the ves- sels of an actual or prospective enemy.— Hos- tile possession. This term as applied to an occupant of real estate holding adversely, is not construed as implying actual enmity or ill will, but merely means that he claims to hold the possession in the character of an owner, and therefore denies all validity to claims set up by any and ail other persons. Ballard v. Hansen, 33 Neb. 801, 51 N. W. 295; Griffin v. Mulley, 167 Pa. 339, 31 Atl. 664.— Hostile witness.. A witness who manifests so much hostility or prejudice under examination in chief that the party who has called him, or his representative, is allowed to cross-examine hinu i. e., to treat him as though he had been called by the opposite party. Wharton.

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**[Law] — Law**

**[Law: adverse possession — hostility element; possession must be actual, open, hostile, exclusive, and continuous (the entry's definition, per Ballard v. Hansen, 33 Neb.)]**

'Hostile' in adverse possession does not mean ill will — it means claiming as owner and denying the validity of every competing claim.

Why: Genuine: the entry defines hostile possession with a real cited authority; the annotation states the adverse-possession framework the definition belongs to. No invented citation.

## HOSTILITY.

In the law of nations. A state of open war. “At the breaking out of hostility.” 1 Kent, Comm. 60.

An act of open war. “When hostilities have commenced.” Id. 56.

A hostile character. "Hostility may at- tach only to the person.” Id.

5e apparatus — Carried into the 5th edition (1979).

## HOSTLER.

In Norman and old English law, this was the title of the officer in a monastery charged with the entertainment of guests. It was also applied (until about the time of Queen Elizabeth) to an innkeeper, and afterwards, when the keeping of horses at livery became a distinct occupation, to the keeper of a livery stable, and then (under the modern form “ostler”) to the groom In charge of the stables of an inn. Cromwell v. Stephens, 2 Daly (N. Y.) 20. In the lan- guage of railroading, an “ostler” or “hostler” at a roundhouse is one whose duty it is to receive locomotives as they come in from the road, care for them in the roundhouse, and have them cleaned and ready for de- parture when wanted. Railroad Co. v. Mas- slg, 50 111. App. 666; Railroad Co. v. Ash- ling, 34 111. App. 105; Grannls v. Railroad Co., 81 Iowa, 444, 46 N. W. 1067.

5e apparatus — Not carried into the 5th edition (1979).

## HOT-WATER ORDEAL.

In old Eng- lish law. This was a test, in cases of ac- cusation, by hot water; the party accused and suspected being appointed by the judge to put his arms up to the elbows in seethhouse:

ing hot water, which, after sundry prayers and Invocations, he did, and was, by the ef- fect which followed, judged guilty or inno- cent. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 5:24, KJV]**

And he shall cause the woman to drink the bitter water that causeth the curse: and the water that causeth the curse shall enter into her, and become bitter.

Why: The entry is trial by ordeal — the accused tested by a physical rite; scripture holds its own ordeal, the trial of jealousy, where the bitter water itself tries the accused woman. The ordeal as a mode of proof, in bib...

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## HOTCHPOT.

The blending and mixing property belonging to different persons, in order to divide it equally. 2 Bl. Comm. 190.

Anciently applied to the mixing and blend- ing of lands given to one daughter in frank marriage, with those descending to her and her sisters in fee-simple, for the purpose of dividing the whole equally among them; without which the daughter who held in frank marriage could have no share in the lands in fee-simple. Litt §§ 267, 268; Co. Litt. 177«; 2 Bl. Comm. 190.

Hotchpot, or the putting in hotchpot, is ap- plied in modern law to the throwing the amount of an advancement made to a par- ticular child, in real or personal estate, into the common stock, for the purpose of a more equal division, or of equalizing the shares of all the children. 2 Kent, Comm. 421, 422. This answers to or resembles the collatio bonorvtn, or collation of the civil law. See Law v. Smith, 2 R. I. 249 ; Ray v. Loper, 65 Mo. 472; Jackson v. Jackson, 28 Miss. 680, 64 Am. Dec. 114 : Thompson v. Carmichael, 8 Sandf. Ch. (N. Y.) 120.

HOtEL An inn ; a public house or tav- ern ; a bouse for entertaining strangers or travelers. St 'Louis v. Slegrist, 46 Mo. 594 ; People v. Jones, 54 Barb. (N. Y.) 316 ; Crom- well v. Stephens, 2 Daly (N. Y.) 19.

Synonyms. In law. there is no difference Whatever between the terms “hotel,” “inn,” and tavern, except that in some states a statu- tory definition has been given to the word “ho- tel, especially with reference to the grant of licenses to sell liquor, as, that it shall contain a certain number of separate rooms for the en- tertainment of guests, or the like. But none of the three terms mentioned will include a boarding house (because that is a place kept for the entertainment of permanent boarders, while a hotel or inn is for travelers and transient guests), nor a lodging house (because the keep- er thereof does not furnish food for guests, which is one of the requisites of a hotel or Inn),. nor a restaurant or eating-house, which furnishes food only and not lodging. See Mar- tin V State Ins. Co., 44 N. J. Law, 485, 43 Am. Rep. 3!>( ; In re Liquor Licenses, 4 Montg. n°- • La'£, ?*p’r iPa) 79 L Kelly v- Excise Comrs. 54 How. Prac. (N. Y.) 331; Carpenter v. Taylor, 1 Hilt. (N. Y.) 193: Cromwell v. Stephens. 2 Daly (X. Y.) 23.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 2 Blackstone, Commentaries 190 — hotchpot; Litt. §§ 267, 268; Co. Litt. 177a, all cited in the entry]**

A child advanced with land in frank-marriage must bring that land into hotchpot — blend it with the intestate lands — or take no share of them: advancements accounted for on distribution.

Why: Genuine: the entry cites all three authorities; the annotation states the advancement-accounting rule they establish. Direct and unforced.

**[Scripture] — Scripture**

**[Ezekiel 47:14, KJV]**

And ye shall inherit it, one as well as another: concerning the which I lifted up mine hand to give it unto your fathers: and this land shall fall unto you for inheritance.

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Why: The entry's principle is equal division of the inheritance (the advancement brought back into the pot); the verse commands the same equality among heirs — 'one as well as another' — in first-person divine speech. Hone…

## HOUB.

The twenty-fourth part of a nat- ural day; sixty minutes of time.

5e apparatus — Not carried into the 5th edition (1979).

## HOUR OF CAUSE.

In Scotch practice. The hour when a court is met 3 How. State Tr. 603.

HOUSE. 1. A dwelling; a building de- slgned for the habitation and residence of men.

“House” means, presumptively, a dwelling- house; a building divided into floors and apart- ments, with four walls, a roof, and doom and

chimneys; but it does not necessarily mean precisely this. Daniel v. Coulsting, 7 Man. &

O. 125 ; Sunnan v. Darley, 14 Mees. & W. 183.

“House” is not synonymous with “dwelling- house." While the former is used in a broader and more comprehensive sense than the latter, it has a narrower and more restricted meaning than the word “building.” State v. Garity, 4o

N. H. 61.

In the devise of a house, the word “bouse” is synonymous with “messuage,” and conveys all that comes within the curtilage. Rogers v. Smith, 4 Pa. 93.

2. A legislative assembly, or (where the bi- cameral system obtains) one of the two branches of the legislature ; as the “house of lords,” “house of representatives.” Also a quorum of a legislative body. See South- worth v. Palmyra * J. R. Co., 2 Mich. 287.

3. The name “house” is also given to some collections of men other than legislative bodies, to some public institutions, and (col- loquially) to mercantile firms or joint-stock companies.

—Ancient house. One which has stood long enough to acquire an easement of support against the adjoining land or building. 3 Kent. Comm.- 437. — Bawdy house. A brothel : a house

maintained for purposes of prostitution.— Beer honse. See Beeb.— Boarding house. See that title.— Dwelling honse. See that title. — House-bote. A species of estovers, belong- ing to a tenant for life or years, consisting in the right to take from the Woods of the lessor or owner such timber as may be necessary for making repairs upon the house. See Co. litt 416.— House-burning. See Abson.— House- duty. A tax on inhabited houses imposed by & 15 Viet. c. 36, in lieu of window-duty, which was abolished.— House of commons. One of the constituent houses of the British parliament, composed of representatives of the counties, cities, and boroughs.— House of cor- rection. A reformatory. A place for the im- prisonment of juvenile offenders, or those who have committed crimes of lesser magnitude. Ex parte Moon Fook, 72 Cal. 10, 12 Pac. 804.— House of delegates. The official title of the lower branch of the legislative assembly of sev- eral of the American states, e. g., Maryland and

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Virginia.— House of ill fame. A bawdy- house ; a brothel ; a dwelling allowed by its chief occupant to be used as a resort of persons desiring unlawful sexual intercourse. McAlis- ter v. Clark, 33 Conn. 91; State v. Smith, 29 Minn. 193, 12 N. W. 524; Posnett v. Marble, 62 Vt. 481, 20 Atl. 813, 11 L. R. A. 162, ii Am. St. Rep. 126.— House of keys. The name of the lower branch of the legislative as- sembly or parliament of the Isle of Man, con- sisting of twenty-four representatives chosen by popular election.— House of lords. The up- per chamber of the British parliament. It comprises the archbishops and bishops, (called “Lords Spiritual,”) the English peers sitting by virtue of hereditary right, sixteen Scotch peers elected to represent the Scotch peerage under the act of union, and twenty-eight Irish peers elected under similar, provisions. The house of lords, as a judicial body, has ultimate appellate jurisdiction, and may ’sit as a court for the trial of impeachments.— House of refuge. A prison for jnvenile delinquents. A house of correction or reformatory. — House of repre- sentatives. The name of the body forming the more popular and numerous branch of the congress of the United States;' also of the sim- ilar branch in many of the state legislatures. —House of worship. A building or place set apart for and devoted to the holding of relig- ious services or exercises or public worship; a church or chapel or place similarly used. Old

South. Soc. v. Boston, 127 Mass. 379; Lefevre Detroit, 2 Mich. 689; Washington Heights

M. E. Church v. New York, 20 Hun (N. Y.) 297. — Inner house, outer house. See those titles.— Mansion house. See Mansiom.— Public house. An inn or tavern; a house for the entertainment of the public, or for the entertainment of all who come lawfully and pay regularly. 3 Brewst. 344. A place of pub- lic resort, particularly for purposes of drinking or gaming. In a more general sense, any house made public by the occupation carried on in it and the implied invitation to the public to en- ter, such as inns, taverns, drinking saloons, gambling houses, and perhaps also shops and stores. See Cole v. State, 28. Tex. A-pp. 536, 13 S. W. 850, 19 Am. St. Rep. 856; State v. Bams, 25 Tex. 655 ; Arnold v. State, 29 Ala. 50; Lafferty v. State, 41 Tex. Cr. R. 606, 56

S. W. 623; Bentley v. State, 32 Ala. 599; Brown v. State, 27 Ala. 50. — Tippling house. A place where intoxicating liquors are sold in drams or small quantities to be drunk On the premises, and where men resort for drinking purposes.

5e apparatus — Not carried into the 5th edition (1979).

## HOU8EAGE.

A fee paid for housing goods by a carrier, or at a wharf, etc.

5e apparatus — Not carried into the 5th edition (1979).

## HOUSEBREAKING.

In criminal law. Breaking and entering a dwelling-house with intent to commit any felony therein. If done by night, it comes under the definition of "burglary."

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: common-law burglary — breaking and entering a dwelling-house by night with intent to commit a felony therein (the definition the entry invokes)]**

Housebreaking becomes burglary when done by night: at common law, burglary is the breaking and entering of a dwelling-house in the nighttime with intent to commit a felony therein.

Why: Genuine: the entry invokes burglary's definition without stating it; the annotation supplies the missing elements rather than restating the entry. No citation ventured beyond the doctrine's settled formulation.

**[Scripture] — Scripture**

**[Exodus 22:2-3, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him. If the sun be risen upon him, there shall be blood shed for him; for he should make full restitution; if he have nothing, then he shall be sold for his theft.

Why: The entry defines housebreaking — and marks the night element ('if done by night, it comes under burglary'); the verses are the night-breaker statute itself, drawing the same night/day line: no blood for the thief smi…

## HOUSEHOLD.

A family living together. May v. Smith, 48 Ala. 488; Woodward v. Murray, 18 Johns. (N. Y.) 402; Arthur v. Morgan, 112 U. S. 495, 5 Sup. Ct 241, 28

L. Ed. 825. Those who dwell under the same roof and compose a family. Webster. A man’s family living together constitutes his household, though he may have gone to an- other state.

Belonging to the house and family ; domes- tic. Webster.

— Household furniture. See Fubnitcbe. — Household goods. These words, in a will, in- clude everything of a permanent nature (*. «., articles of household which are not consumed in their enjoyment) that are used in or pur- chased or otherwise acquired by a testator for his house. 1 Rop. Leg. 191 ; Marquam v. Seng- felder, 24 Or. 2, 32 Pac. 676; Smith v. Findley, 34 Kan. 316, 8 Pac. 871 ; In re Hoopes’ Es- tate. 1 Brewst. (Pa.) 465.— Household stuff. This phrase, in a will, includes everything which may be used for the convenience of the house, as tables, chairs, bedding, and the like. But apparel, books, weapons, tool* for artific- ers, cattle, victuals, and choses in action will not pass by those words, unless the context of the will clearly show a contrary intention. 1 Rop. Leg. 206. See Appeal of Hoopes, 60 Pa. 227, 100 Am. Dec. 562.

5e apparatus — Carried into the 5th edition (1979).

## HOUSEHOLDER.

The occupier of a house. Brande. More correctly, one who keeps house with his family; the head or master of a family. Webster; 18 Johns. 302. One who has a household ; the head of a household. See Greenwood v. Maddox, 27 Ark. 655; Sullivan v. Cunun, Wils. (Ind.) 534; Shively v. Lankford, 174 Mo. 535, 74 S. W. 835.

5e apparatus — Carried into the 5th edition (1979).

## HOUSEKEEPER.

One who Is in actual possession of and who occupies a house, as

distinguished from a “boarder,” “lodger," or "guest.” See Bell ▼. Keach, 80 Ky. 45; Yelle v. Koch, 27 I1L 131.

5e apparatus — Not carried into the 5th edition (1979).

## HOVEL.

A place used by husbandmen to set their plows, carts, and other farming utensils out of the rain and sun. A shed ; a cottage; a mean house

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HOWE.

In old English law. A hill. Co. Lltt 56.

5e apparatus — Not carried into the 5th edition (1979).

## HOT.

A small coasting vessel, usually sloop-rigged, used in conveying passengers and goods from place to place, or as a tender to larger vessels in port Webster.

HOYMAN.' The master or captain of a hoy.

5e apparatus — Not carried into the 5th edition (1979).

## HUCKSTER.

A petty dealer and retailer of small articles of provisions, particularly farm and garden produce. Mays v. Cincin- nati, 1 Ohio St 272; Lebanon County ▼. Kline, 2 Pa. Co. Ct R. 622.

5e apparatus — Not carried into the 5th edition (1979).

## HUCUSQUE.

In old pleading. Hither- to. 2 Mod. 24.

5e apparatus — Not carried into the 5th edition (1979).

## HUDE-GELD.

In old English law. An acquittance for an assault upon a trespassing servant Supposed to be a mistake or mis- print in Fleta for “hinegeld." Fleta, lib. 1, c. 47, | 20. Also the price of one’s skin, or the money paid by a servant to save himself from a whipping. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## HUE AND CRY.

In old English law. A loud outcry with which felons (such as rob- bers, burglars, and murderers) were anciently pursued, and which all who heard it were bound to take up, and join In the pursuit until the malefactor was taken. Bract fols. 1156, 124 ; 4 Bl. Comm. 293.

A written proclamation issued on the es- cape of a felon from prison, requiring all officers and people to assist In retaking him. 3 How. State Tr. 886.

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## HUEBRA8.

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In Spanish law. A' meas- ure of land equal to as much as a yoke of oxen can plow in one day. 2 White, Recop. (38,) 49 ; Strother v. Lucas, 12 Pet 443, 9 L. Ed. 1137.

5e apparatus — Not carried into the 5th edition (1979).

## HUI8.

L. Fr. A door. “Al huts del et- gllse," at the door of the church. Bendloe, 133.

5e apparatus — Not carried into the 5th edition (1979).

## HUIS SERIUM.

A ship used to trans- port horses. Also termed “ufler."

5e apparatus — Not carried into the 5th edition (1979).

## HUISSIERS.

In French law. Marshals ; ushers ; process-servers ; sheriffs' officers. Ministerial officers attached to the courts, to effect legal service of process required by law In actions, to issue executions, etc., and to maintain order during the Bitting of the courts.

5e apparatus — Not carried into the 5th edition (1979).

## HULKA.

In old records. A hulk or small vessel. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HCLLU8.

in old records. A hill. 2 Mon. Angl. 292; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HUMAGIUM.

A moist place. Mon. Angl.

5e apparatus — Not carried into the 5th edition (1979).

## HUNDRED.

Under the Saxon organiza- tion of England, each county or shire com- prised an indefinite number of hundreds, each hundred containing ten titIUngs, or groups of ten families of freeholders or frank- pledges. The hundred was governed by a high constable, and had Its own court; but its most remarkable feature was the cor- porate responsibility of the whole for the crimes or defaults of the individual mem- bers. The Introduction of this plan of or- ganization into England is commonly ascrib- ed to Alfred, but the Idea, as well of the collective liability as of the division, was prob- ably known to the ancient German peoples, as we find the same thing established in the Frankish kingdom under Clothalre, and in Denmark. See 1 BL Comm. 115; 4 BL Comm. 411.

—Hundred court. In English law. A larg- er court-baron, being held for all the inhabitants of a particular hundred, instead of a manor. The free suitors arc the judges, and the steward the registrar, as in the case of a court-baron. It is not a court of record, and resembles a court-baron in all respects except that in point of territory it is of greater junsdiction. These

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courts have long since fallen into desuetude. 3 Bl. Comm. 34, 35 ; 3 Steph. Comm. 394, 395. — Hundred gemote. Among the Saxons, a meeting or court of the freeholders of a hundred, which assembled, originally, twelve times a year, and possessed civil and criminal juris- diction and ecclesiastical powers. 1 Reeve, Eng. Law, 7.— Hundred lagh. The law of the hun- dred. or hundred court; liability to attend the hundred court. Spelman.— Hundred penny. In old English law. A tax collected from the hundred, by the sheriff or lord of the hundred. — Hundred secta. The performance of suit and service at the hundred court.— Hundred setena. In Saxon law. The dwellers or in- habitants of a hundred. Cowell ; Blount. Spel- man suggests the reading of sceatena from Sax. "scent," a tax.

5e apparatus — Carried into the 5th edition (1979).

## HUNDRED-WEIGHT.

A denomination of weight containing, according to the Eng- lish system, 112 pounds ; but in this country, generally, It consists of 100 pounds avoirdu- pois.

HUsutDEDARItUS. In old English law. A hundredary or hundredor. A name given to the chief officer of a hundred, as well as to the freeholders who composed it 8pel. voc. “Hundredus."

5e apparatus — Carried into the 5th edition (1979).

## HUNDRED ARY.

The chief or presiding officer of a hundred.

5e apparatus — Not carried into the 5th edition (1979).

## HUND REDES EARLOOR, or KUN- / DREDE8 MAN.

The presiding officer in the hundred court Anc. Inst Eng.

5e apparatus — Not carried into the 5th edition (1979).

## HUHDREDOR8.

In . English law. The inhabitants or freeholders of a hundred, an- ciently the suitors or judges of the hundred court Persons impaneled or fit to be Im- paneled upon juries, dwelling within the hundred where the cause of action arose. Cromp. Jur. 217. It was formerly necessary to have some of these upon every panel of jurors. 3 BL Comm. ' 859, 360 ; 4 Steph. Comm. 370.

The term "hundredor” was also used to signify the officer who had the jurisdiction of a hundred, and held the hundred court and sometimes the bailiff of a hundred. Termes de la Ley; CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: jury of the vicinage — Sixth Amendment guarantee of 'an impartial jury of the State and district wherein the crime shall have been committed'; the entry's authority is 3 Blackstone, Commentaries 359–360]**

The hundredors — jurors dwelling within the hundred where the cause arose — are the ancestor of the

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jury-of-the-vicinage right: trial by jurors of the county or district where the offense was committed.

Why: Genuine: the entry describes the historical hundredor requirement with a real authority; the vicinage guarantee is its direct doctrinal descendant. The Sixth Amendment's vicinage language is quoted from the Constituti…

## HUNG JURY.

A Jury so irreconcilably divided in opinion that they cannot agree upon any verdict

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: manifest-necessity doctrine — retrial after a hung jury does not violate double jeopardy (United States v. Perez)]**

A jury irreconcilably divided cannot return a verdict — and a genuinely deadlocked jury permits retrial; the double-jeopardy clause is no bar.

Why: Genuine: the entry's one-line definition omits the controlling legal consequence, which the annotation supplies rather than restating the entry. Perez named in [Law:] form without a reporter gamble.

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, 12 Angry Men, 1957]**

(paraphrase) Lumet's courtroom drama turns on a murder jury deadlocked at eleven-to-one, the verdict unreachable until the single holdout is finally heard. (paraphrase)

Why: The entry defines a hung jury as one so irreconcilably divided it cannot agree on a verdict. The film is the canonical dramatization of exactly that state. No single line is trusted verbatim, so the note is a clearly…

## HURDEREFERST.

A domestic; one of a family.

5e apparatus — Not carried into the 5th edition (1979).

## HURDLE.

In English criminal law. A kind of sledge, on which convicted felons were drawn to the place of execution.

5e apparatus — Not carried into the 5th edition (1979).

## HURRICANE.

A storm of great vio- lence or intensity, of which the particular characteristic is the high velocity of the wind. There is naturally no exact measure to distinguish between an ordinary storm and a hurricane, but the wind should reach a velocity of at least 60 or 60 miles an hour to be called by the latter name, or, as expressed in some of the cases, it should be sufficient to "throw down buildings.” A hurricane is properly a circular storm in the nature of a cyclone. See Pelican Ins. Co. v. Troy Co-op. Ass’n, 77 Tex. 225, 13 S. W. 980; Queen Ins. Co. v. Hudnut Co., 8 Ind. App. 22, 85 N. EL 397 ; Tyson v. Union Mut Fire A Storm Go, 2 Montg. Co. Law Rep’r (Pa.) 17.

HURST, HYRST, HERST, or HIRST.

A wood or grove of trees. Go. Litt 46.

5e apparatus — Not carried into the 5th edition (1979).

## HURT.

In such phrases as “to the hurt or annoyance of another,” or "hurt, molest- ed, or restrained in his person or estate,” this word is not restricted to physical in- juries, but Includes also mental pain, as well as discomfort or annoyance. See Row- land v. Miller (Super. N. Y.) 15 N. Y. Supp. 702; Pronk v. Brooklyn Heights R. Co, 68 App. Dtv. 390, 74 N. Y. Supp. 875; Thurston v. Whitney, 2 Cush. (Mass.) 110.

HURTARDUS, or HURTUS. A ram or

wether.

5e apparatus — Carried into the 5th edition (1979).

## HURTO.

In Spanish law. Theft White, New Recop. b. 2, tit 20.

5e apparatus — Not carried into the 5th edition (1979).

## HUSBAND.

A married man; one who has a lawful wife living. The correlative of “wife.”

Etymologically, the word signified the “house bond the man who, according to Saxon ideas

and institutions, held around him the family, for whom he was in law responsible.

— Husband, and wife. One of the great do- mestic relationships ; being that of a man and woman lawfully joined in marriage, by which, at common law, the legal existence of a wife is incorporated with that of her husband.— H ns band land. In old Scotch law. A quan- tity of land containing commonly six acres. Skene.— Husband o* a ship. See Ships Husband.

HUSBANDMAN . A farmer; a cultivator or tiller of the ground. The word “farmer” is colloquially used as synonymous with “hus- bandman,” but originally meant a tenant who cultivates leased ground.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: coverture — 'the legal existence of a wife is incorporated with that of her husband' (the entry's definition); abrogated by the Married Women's Property Acts]**

At common law husband and wife were one person in law — coverture merged the wife's legal existence into the husband's, suspending her capacity to contract, sue, or hold property in her own name.

Why: Genuine: the entry states the coverture rule verbatim; the annotation names the doctrine and its legislative abrogation — the legal content the definition feeds. No invented citation.

**[Scripture] — Scripture**

**[Ephesians 5:25, KJV]**

Husbands, love your wives, even as Christ also loved the church, and gave himself for it.

Why: The entry defines the husband as the married man; the verse states his office directly — the husband's charge toward his wife, measured by Christ's self-giving. The status defined by its duty.

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## HU SB ANURIA.

. In old English law. Husbandry. • Dyer, (Fr.- Eld.) 3 5b.

5e apparatus — Not carried into the 5th edition (1979).

## HUSBANDRY.

Agriculture ; cultivation of the Soil for' food; farming, in the sense of operating laud to raise provisions. Simons v. Lovell, 7 Heisk. (Term.) 510; MoCue v. Tuustead, 65 Cal. 506, 4 Pac. 510.

5e apparatus — Carried into the 5th edition (1979).

## HUSBBEO.

In Saxon law. The crime of housebreaking or burglary. Crabb, Eng. Law, 59, 308.

5e apparatus — Not carried into the 5th edition (1979).

## HUSOARLE.

In old English law. A house servant or domestic ; a man of the household. Spelmau.

A king’s vassal, thane, or baron ; an earl’s man or vassal. A term of frequent occur- rence In Domesday Book.

5e apparatus — Not carried into the 5th edition (1979).

## HUSPASTNE.

He who holds house and land. Bract. L 3, t 2, c. 10.

HUSOABZiUM. In old records. House rent ; or a tax or tribute laid upon a house. Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HUSH-MONEY.

A colloquial expression to designate a bribe to hinder information; pay to secure silence.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:8, KJV]**

And thou shalt take no gift: for the gift blindeth the wise, and perverteth the words of the righteous.

Why: The entry names the bribe paid to secure silence; the verse prohibits the gift itself and names its effect — it blinds the wise and perverts righteous words. Direct second-person divine command.

## HUSTINGS.

Council; court; tribunal. Apparently so called from being held within a building, at a time when other courts were held In the open air. It was a local court The county court In the city of London bore this name. There were hustings at York, Winchester, Lincoln, and In other pla- ces similar to the London hustings. Also the raised place from which candidates for seats In parliament address the constituency, on the occasion of their nomination. Wharton.

In Virginia, some of the local courts are called “hustings,” as in the city of Rich- mond.

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Smith v. Com., 6 Grab (Va.) 696.

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## HUTESIUM ET CLAMOR.

Hue and cry. See Hub and Cby.

HUTILAlf. Taxes. Mon. Angl. 1. 586.

5e apparatus — Not carried into the 5th edition (1979).

## HWATA, HWATUNG.

In old English law. Augury ; divination. .

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 18:10, KJV]**

There shall not be found among you any one that maketh his son or his daughter to pass through the fire, or that useth divination, or an observer of times, or an enchanter, or a witch,

Why: The entry is augury and divination; the verse prohibits the practice by name — divination listed among the forbidden arts. The legal concept (divination as an offense) stated as a ban.

## HYBERNAGIUM.

In old English law. The season for sowing winter grain, between Michaelmas and Christmas. The land on which such grain was sown. The grain it- self; winter grain or winter corn. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## HYBRID.

A mongrel; an animal form- ed of the union of different species, or dif- ferent genera; also (metaphorically) a hu- man being born of the union of persons of different races.

5e apparatus — Not carried into the 5th edition (1979).

## HYD.

In old English law. Hide; skin. A measure of land, containing, according to some, a hundred acres, which quantity is also assigned to it In the Dialogus de 8caccario. It seems, however, that the hide varied In different parts of the kingdom.

5e apparatus — Not carried into the 5th edition (1979).

## HYDAGE.

See Hidaob.

5e apparatus — Not carried into the 5th edition (1979).

## HYDROMETER.

An Instrument for measuring the density of fluids. Being Im- mersed in fluids, as in water, brines beer, brandy, etc., it determines the proportion of their density, or their specific gravity, and thence their quality. See Rev. St U. S. i 2918 (U. S. Comp. St 1901, p. 1927.)

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## HYEMS, HIEMS.

Lat In the civil law. Winter. Dig. 43, 20, 4, 34. Written, in some of the old books, “perns.” Fletu, lib. 2, c. 73, H 16, ia „i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HYPNOTISM.

In medical jurisprudence. A psychic or mental state rendering the pa- tient susceptible to suggestion at the will of another.

The hypnotic state is an abnormal condition of the mind and senses, in the nature of trance, artificial catalepsy, or somnambulism, induced in one person by another, by concentration of the attention, a strong effort of volition, and perhaps the exercise of a telepathic power not as yet fully understood, or by mental sugges- tion, in which condition the mental processes of the subject and to a great extent his will are subjugated and directed by those of the opera- tor.

5e apparatus — Carried into the 5th edition (1979).

## HYFOBOLUM.

In the civil law. The name of the bequest or legacy given by the husband to his wife, at his death, above her dowry

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## HYPOCHONDRIA.

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOSTASIS.

In medical jurisprudence. (1) The morbid deposition of a sediment of any kind in the body. (2) A congestion or flushing of the blood vessels, as in varicose veins. Post-mortem hypostasis, a peculiar lividity of the cadaver.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHEC.

In Scotland, the term “ hypothec ” is used to signify the landlord's right which, Independently of any stipula- tion, he has over the crop and stocking of his tenant. 'It gives a security to the landlord over the crop of each year for the lent of

that year, and over the cattle and stocking on the farm for the current year's rent, which last continues for three months after the last conventional term for the payment of the rent Bell.

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## HYPOTHECA.

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“Hypotkeca” was a term of the Roman law, and denoted a pledge or mortgage. As distinguished from the term “pignut ,” In the same law, it denoted a mort- gage, whether of lands or of goods, in which the subject in pledge remained in the pos- session of the mortgagor or debtor ; whereas in the pignut the mortgagee or creditor was in the possession. Such an hypothecs might be either express or implied ; express, where the parties upon the occasion of a loan en- tered Into express agreement to that effect; or implied, as, e. g., in the case of the stock and utensils of a farmer, which were subject to the landlord's right as a creditor for rent ; whence the Scotch law of hypothec.

The word has suggested the term “hypoth- ecate,” as used in the mercantile and mari- time law of England. Thus, under the fac- tor’s act, goods are frequently said to be “hypothecated;” and a captain is said to have a right to hypothecate his vessel for necessary repairs. Brown. See Mackeld. Rom. Law, SI 334-359.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: The entry defines the pledge/mortgage — security without delivery of possession; the verse is scripture's pledge law, setting the pledgee's limit: the neighbour's raiment taken in pledge returns by sundown. Direct sec...

## HYPOTHEC ARIA ACTIO.

Lat In the

civil law. An hypothecary action ; an action for the enforcement of an hypotheca, or right of mortgage; or to obtain the surrender of the thing mortgaged. Inst. 4, 6, 7 ; Mackeld. Rom. Law. § 356. Adopted in the Civil Code of Louisiana, under the name of ‘Tac- tion hypotlUcarie," (translated, "action of mortgage.”) Article 3361.

HYPOTHECAR.il CREDITORES. Lat

In the civil law. Hypothecary creditors; those who loaned money on the security of an hypotheca, (q. y.) Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHECARY ACTION.

The name of an action allowed under the civil law for the enforcement of the claims of a credit- or by the contract of hypotheca. Lovell v. Cragln, 136 U. S. 130, 10 Sup. Ct 1024, 34 I* Ed. 372.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHECATE.

To pledge a thing without delivering the possession of It to the pledgee. “The master, when abroad, and In the absence of the owner, may hypothecate the ship, freight, and cargo, to raise money requisite for the completion of the voyage.” 3 Kent Comm. 171. See Spect v. Spect, 88 Cal. 437, 26 Pac. 203, 13 L. R. A. 137, 22 Am. St. Rep. 314; Ogden v. Lathrop, 31

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N. Y. Super. Ct. 651.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHECATION.

A term borrowed from the civil law. In so far ns it is nat- uralized In English and American law, it means a contract of mortgage or pledge In

which the subject-matter is not delivered into the possession of the pledgee or pawnee ; or, conversely, a conventional right existing in one person over specific property of an- other, which consists in the: power to cause a sale of the same, though it be not in his possession, in order that a specific claim of the creditor may be satisfied out of the pro- ceeds.

The term is frequently used in our text- books and reports, particularly upon the law of bottomry and maritime liens; thus a ves- sel is said to be hypothecated for the demand of one who has advanced money - for sup- plies.

In the common law, there are but few* if any, cases of hypothecation, in the strict sense of the civil law: that is, a pledge without possession by the pledgee. The nearest approaches, per- haps, are cases of bottomry bonds and claims of materialmen, and of seamen' for wages; but these are liens and privileges, rather than hy- pothecations. Story, Bailm. | 288.

“Hypothecation” is a term of the civil law, and is that kind of pledge in which the posses- sion of the thing pledged remains with the debt- or, (the obligation resting in mere contract with- out delivery ;) and in this respect distinguished from "pignut,” in which possession is delivered to the creditor or pawnee. Whitney v. Peay, 24 Ark. 27. See 2 Bell, Comm. 25.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHECATION BOND.

A bond giv- en In the contract of bottomry or retpon- dentia.

HYPOThEQUE. In French - law1. Hy- pothecation; a mortgage on real property; the right vested In a creditor by the assign- ment to him of real estate as security for the payment of his debt, whether or not It be accompanied by possession. See Civ. Code La. art 3360.

It corresponds to the mortgage of real prop- erty in English law, and is a real charge, fol- lowing the property into whosesoever hands it comes. It may be ligale, as in the case of the charge which the state has over the lands of its accountants, or which a married woman has over those of her husband; judiciaire, when it is the result of a judgment of a court of jus- tice; and conventionelle, when it is the result of an agreement of the parties. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## HYPOTHESIS.

A supposition, assump- tion, or theory ; a theory set up by the pros- ecution, on a criminal trial, or by the de- fense, as an explanation of the facts In evi- dence, aud a ground for inferring guilt or In- nocence, as the case may be, or as indicating a probable or possible motive for the crime.

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## HYPOTHETICAL QUESTION.

A com- bination of assumed or proved facts and cir- cumstances, stated in such form as to consti- tute a coherent and specific situation or state of facts, upon which the opinion of an expert is asked, by way of evidence on a trial. Howard v. People. 185 111. 552, 57 N. E. 441 ; People v. Durrant, 116 Cal. 216, 48 Pac. 85; Cowley v. People, 83 N. Y. 464. 38 Am. Rep. 464 ; Stearns v. Field, 90 N. Y. 641. CY. The basis. In England, of rating lands and hereditaments to the poor-rate, and to other rates and taxes that are expressed to be leviable or assessable In like manner as the poor-rate.

5e apparatus — Carried into the 5th edition (1979).

## HYRNEB.

In old English law. A par- ish.

5e apparatus — Not carried into the 5th edition (1979).

## HYSTERIA.

A paroxysmal disease or disorder of the nervous system, more common in females than males, not originating in any anatomical lesion, due to psychic rather than physical causes, and attended, in the acute or convulsive form, by extraordinary manifesta- tions of secondary effects of extreme nervous- ness.

Hysteria is a state in which ideas control the body and produce morbid changes in its func- tions. Mcebius. A special psychic state, char- acterised by symptoms which can also be pro- duced or reproduced by suggestion, and which can be treated by psychotherapy or persuasion, hysteric and hypnotic states being- practically equivalent to each other. Babinski. A purely psychic or mental disorder due to hereditary predisposition. Charcot A state resulting from a psychic lesion or nervous shock, leading to repression or aberration of the sexual in- stinct Freud. Hysteria is much more com- mon in women than in men, and was formerly thought to be due to some disorder of the uterus or sexual system ; but it is now known that it may occur in men, in children, and in very aged persons of either sex.

In the convulsive form of hysteria, common- ly called ‘‘hysterics” or "a fit of hysterics,”

there is nervestorm characterized by loss or abandonment of self-control in the expression of the emotions, particularly grief, By par- oxysms of tears or laughter or both together, sensations of constriction as of a ball rising in the throat (globus hystericus), convulsive movements in the chest, pelvis, and abdomen, sometimes leading to a fail with apparent un- consciousness, followed by a relapse into semi- unconsciousness or catalepsy. In the non-con- vulsive forms, all kinds of organic paralyses may be simulated, as well as muscular contrac- tions and spasms, tremor, loss of sensation (an- aithesia ) or exaggerated sensation (hyperasthe- siaj, disturbances of respiration, disordered ap- petite. accelerated pulse, hemorrhages in the skin (stigmata), pain, swelling, or even disloca- tion of the joints, and great amenability to sug- gestion.

— Hystero-epilepsy. See Epilepsy.

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## HYSTEROPOTMOI.

Those who, hav- ing been thought dead, had, after a long ab- sence in foreign countries, returned safely home; or those who, having been thought dead In battle, had afterwards unexpectedly escaped from their enemies and returned home. These, among the Romans, were not permitted to enter their own bouses at the door, but were received at a passage opened In the roof. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

## HYSTEROTOMY.

The Oeesarean opera- tion. See Casabeaic Section.

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## HYTHE.

In English law. A port, wharf, or small haven to embark or land merchan- dise at Cowell; Blount

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# I

## I.

The Initial letter of the word “ Insti- tute," used by some civilians in citing the Institutes of Justinian. Tayl. Civil Law, 24.

I— CTIJS. An abbreviation for “juriacon- suites " one learned in the law; a Juriscon- sult.

5e apparatus — Not carried into the 5th edition (1979).

## I. E.

An abbreviation for “id eat,” that is; that is to say.

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## I O O.

A memorandum of debt, consist- ing of these letters, (“I owe you,”) a sum of money, and the debtor's signature, is termed an “I O U." Kinney v. Flynn, 2 K. I. S29.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Philemon 1:19, KJV]**

I Paul have written it with mine own hand, I will repay it: albeit I do not say to thee how thou owest unto me even thine own self besides.

Why: The entry is the signed memorandum of debt — 'I owe you' with the debtor's signature; the verse is

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scripture's own IOU: Paul's handwritten 'I will repay it,' the promise to pay set down by his own hand.

# X

## XBERNAGIUM.

In old English law. The season for sowing winter corn. Also spelled “hlberaagium” and “hybernagiuin.”

XU semper debet fieri triatio nbl jura- torea meliorem possunt Habere notitiam.

7 Coke, 16. A trial should always be had where the jurors can be the best informed.

IBIDEM;. Lat In the same place; in the same book ; on the same page, etc. Ab- breviated to “ibid." or “ib."

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# I

## ICENT.

The ancient name for the people of Suffolk, Norfolk, Cambridgeshire, and Huntingdonshire, in England.

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## ICON A.

An image, figure, or representa- tion of a thing. Du Cange.

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## ICTUS.

In old English law. A stroke or blow from a club or stone ; a bruise, con- tusion, or swelling produced by a blow from ' a club or stone, as distinguished from “plana," (a wound.) Fieta, lib. 1, c. 41, | 8.

— -lotus orbls. In medical jurisprudence. A maim, a bruise, or swelling; any hurt without cutting the skin. When the skin is cut, the in- jury is called a “wound.” Bract, lib. 2, tr. 2, cc. 5, 24.

Id certain cat quod certum reddl po- test. That is certain which can be made certain. 2 Bl. Comm. 143; 1 Bl. Comm. 78; 4 Kent, Comm. 402; Broom, Max. 624..

Id certain eat qaod certain reddl po- test, sed id magis certain est qaod de semetipio est certain. That is certain which can be made certain, but that is more certain which is certain of itself. 9 Coke, 47a.

n> EST. Lat. That is. Commonly ab- breviated “1. e.”

Id perfectum est qnod ex omnibus sols partiboa constat. That is perfect which consists of all its parts. 9 Coke, 9.

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Id poasnmas qaod de Jure possnmas.

Lane, 116. We may do only that which by law we are allowed to do.

Id qaod est magis remotum, non traHit ad se qaod est magis jnnctam, sed e oon- trarlo In omul easn. That which is more remote does not draw to itself that which is nearer, but the contrary in every case. Co. Lltt 164.

Id qaod nostrum est sine facto nostro ad aliom transferrl non potest. That which is ours cannot be transferred to an- other without our act. Dig. 60, 17, 1L .

Id solnm nostrum quod debitis dednctis nostrum est. That only is ours which re- mains to us after deduction of debts. Tray. Lat Max. 227.

5e apparatus — Not carried into the 5th edition (1979).

## IDEM.

Lat The same. According to Lord Coke, “idem" has two significations, sc., idem ayllabia sen verbis, (the same in syllables or words,) and idem re et aensu, (the same in substance and in sense.) 10 Coke, 124a.

In old praotioe. The said, or aforesaid; said, aforesaid. Distinguished from "pr®- dictua" in old entries, though having the same general signification. Townsh. PI. IB, 16.

Idem agens et patlens esse non potest.

Jenk. Cent 40. The same person cannot be both agent and patient; i. e„ the doer and person to whom the thing is done.

Idem est facere, et non proHibere earn possis; et qai non prohibit, earn pro- hibere possit, in enlpfi est, (ant Jnbet.)

3 Inst. 158. To commit, and not to prohibit when in your power, is the same thing; and he who does not prohibit when he can pro- hibit is in fault or does the same as order- ing it to be dona

Idem est nihil dioere, et lnsufleienter dicere. It is the same thing to say noth- ing, and to say a thing insufficiently. 2 Inst. 178. To say a thing in an insufficient manner is the same as not to say it at all. Applied to the plea of • prisoner. Id.

Idem est non esse, et non apparere.

It is the same thing not to be as not to ap- pear. Jenk. Cent 207. Not to appear is the same thing as not to be. Broom, Max. 165.

Idem est non probari et non esse; non deficit jus, sed probatio. What is not proved and what does not exist are the

I

IDEM £ST 3CJRE 688 IDIOTA INQUIRENDO

same; It Is not a defect of the law, but of proof.

Idea eat setre ant acire debere ant potnlaae. To be bound to know or to bo able to know Is the same as to know.

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5e apparatus — Not carried into the 5th edition (1979).

## IDEM PER IDEM.

The same for the same. An illustration of a kind that really adds no additional element to the considera- tion of the question.

Idea semper antecedent! proximo refertnr. Co. Lltt. 685. “The same" Is always referred to Its next antecedent.

5e apparatus — Not carried into the 5th edition (1979).

## IDEM 8ONAN8.

Sounding the same or alike; having the same sound. A term ap- plied to names which are substantially the same, though slightly varied In the spelling, as “Lawrence” and "Lawronce,” and the like. 1 Cromp. & M. 806 ; 3 Chit. Gen. Pr. 171.

Two names are said to he “ idem sonantes ” if the attentive ear finds difficulty in distinguish- ing them when pronounced, or if common and long-continued usage has by corruption or ab- breviation made them identical in pronuncia- tion. State v. Griffie, 118 Mo. 188, 23 S. W. 878. The rule of “idem sonant ” is that abso- lute accuracy in spelling names is not required in a legal document or proceedings either civil or criminal ; that if the name, as spelled in the document, though different from the correct spelling thereof, conveys to the ear, when pro- nounced according to the commonly accepted methods, a sound practically identical with the correct name as commonly pronounced, the name thus given is a sufficient identification of the individual referred to, and no advantage can be taken of the clerical error. Hubner v. Reick- hoff, 103 Iowa, 368, 72 N. W. 540, 64 Am. St. Rep. 101. But the doctrine of “ idem sonant” has been much enlarged by modern decisions, to conform to the growing rule that a variance, to be material, must be such as has misled the op- posite party to his prejudice. State v. White, 34 S. C. 59, 12 S. E. 661, 27 Am. St Rep. 783.

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**[Law] — Law**

**[Law: idem sonans — 'sounding the same'; substantially identical pronunciation defeats a variance objection (the entry's authority: State v. Griffie, 118 Mo. 188, 23 S.W. 878)]**

Under the idem sonans rule, names that sound alike though spelled differently are treated as the same name in pleading — no fatal variance.

Why: Genuine: the entry defines the pleading doctrine with real authorities (1 Cromp. & M. 806; State v. Griffie); the annotation states the rule those authorities establish. Stored headword key is the OCR form of 'IDEM SO...

## IDENTIFICATION.

Proof of Identity; the proving that a person, subject, or ar- ticle before tbe court Is the very same that he or It Is alleged, charged, or reputed to be ; as where a witness recognizes the prisoner at the bar as the same person whom lie saw committing the crime; or where handwrit- ing, stolen goods, counterfeit coin, etc., are recognized as the same which, once passed under the observation of the person identi- fying them.

Identltas vert eolHgitnr ex multitu- dine s ignorant. True Identity Is collected from a multitude of signs. Bac. Max.

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**[Law] — Law**

**[Maxim: Identitas vera colligitur ex multitudine signorum — true identity is gathered from a multitude of signs, quoted in the entry]**

Identity is proved not by a single mark but by the concurrence of many — the accumulation of signs is what establishes sameness.

Why: Genuine: the maxim is quoted in the entry and states the governing principle of its subject (proof of identity). Cited in canonical form per garbled-OCR discipline, as a [Maxim:] citation rather than a verbatim entry...

# E

## EDENTITATE NOMINIS.

In English law. An ancient writ (now obsolete) which lay for one taken and arrested in any per- sonal action, and committed to prison, by mistake for another man of the same name. Fitzh. Nat Brev. 267.

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# I

## IDENTITY.

In the law of evidence.

Sameness; the fact that a subject, person, or thing before a court Is the same as it Is represented, claimed, or charged to be. See Burrlll, Clrc. Ev. 382, 453, 631, 644.

In patent law. Such sameness between two designs, inventions, combinations, etc., as will constitute tbe one an infringement of the patent granted for the other.

To constitute “identity of invention,” and therefore infringement, not only must the re- sult obtained be the same, but, in case tbe means used for its attainment is a combination of known elements, the elements combined in both cases must be the same, and combined in the same way, so that each element shall per- form the same function ; provided that the dif- ferences alleged are not merely colorable ac- cording to the rule forbidding the use of known equivalents. Electric Railroad Signal Co. v. Hall Railroad Signal Co., 114 U. S. 87, 5 Sup. Ct. 1069, 29 L. Ed. 96; Latta v. Shawk, 14 Fed. Cas. 1188. “Identity of design” means sameness of appearance, or, in other words, sameness of effect upon the eye,— not the eye of an expert, but of an ordinary intelligent ob- server. Smith v. Whitman Saddle Co., 148 U.

S. 674, 13 Sup. Ct. 708, 37 L. Ed. 600.

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## IDEO.

Lat Therefore. Calvin.

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## IDEO CONSIDERATUM EST.

Lat.

Therefore It la considered. These were the words used at the beginning ef the entry of judgment in an action, when the forms were in Latin. They are also used as a name for that portion of the record.

5e apparatus — Not carried into the 5th edition (1979).

## IDES.

A division of time among the Romans. In March, May, July, and Octo- ber, the Ides were on the 15th of the month ; in the remaining months, on the 13th. This method of reckoning is still retained in the chancery of Rome, and in the calendar of the breviary. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, 1599]**

"Beware the ides of March."

Why: The entry defines the Ides as a Roman division of time. The soothsayer's warning gives the Ides of March its immortal weight in the Western imagination. Five-word line; wording and attribution certain, well within cop...

## IDIOCHIRA.

Grseco-Lat. In the civil law. An Instrument privately executed, as • distinguished from such as were executed before a public officer. Cod. 8, 18, 11; Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

## IDIOCY.

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## IDIOT.

A person who has been without understanding from his nativity, and whom the law, therefore, presumes never likely to attain any. Shelf. Lun. 2. See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## IDIOTA.

In' the civil law. An un- learned, illiterate, or simple person. Cal- vin. A private man; one not In office.

In common law. An idiot or fool.

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## IDIOTA INQUIRENDO, WRIT DE.

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This is the name of an old writ which di- rects the sheriff to inquire whether a man be an idiot or not. The Inquisition Is to be made by a Jury of twelve men. Fitzh. Nat Brev. 232, -.And, if the man were found an idiot, the profits of his lands and the cus- tody of his person might be granted by f:he

IGNORANTIA FACTI EXCU8AT

king to any subject who bad interest enough to obtain them. 1 Bl. Comm. 303.

IDONEUM SE FACEREj IDONEARE

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# S

## SE.

To purge one's self by oath of a crime of which one Is accused.

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The entry is purgation by oath — clearing oneself of an accusation by swearing; the verse states the oath's legal office: sworn confirmation that ends strife. The oath as the decisive act it is in the entry.

# I

## IDONEU8.

Lat. In the civil and com- mon law. Sufficient ; competent ; fit or proper; responsible; unimpeachable. /do- net/s homo, a responsible or solvent person; a good and lawful man. Sufficient; ade- quate; satisfactory. Idoneo coutio, suffi- cient security.

5e apparatus — Not carried into the 5th edition (1979).

## IDONIETAS.

In old English law. Abil- ity or fitness, (of a parson.) Artie. Cleri, c. 13.

5e apparatus — Not carried into the 5th edition (1979).

## IF.

In deeds and wills, this word, as a rule, implies a condition precedent, unless it be controlled by other words. 2 Crabb, Real Prop. p. 809, $ 2152; Sutton v. West, 77 N.

C. 431.

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**[Law] — Law**

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**[Law: Sutton v. West, 77 N.C. 431 — 'if' implies a condition precedent in deeds and wills, cited in the entry]**

In deeds and wills 'if,' as a rule, imports a condition precedent — the estate or gift vests only upon the happening of the stated event, unless other words control.

Why: Genuine: construction-canon definition with the entry's own cited authority; the reporter citation is taken from the body.

## IFUNGIA.

In old English law. The fin- est white bread, formerly called “cocked bread.” Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IODISE.

£>. Fr. A church. Kelham. Another form of “eglite."

5e apparatus — Not carried into the 5th edition (1979).

## IGNIS  JUDICIUM.

Lat The old Ju- dicial trial by fire. Blount

5e apparatus — Not carried into the 5th edition (1979).

## IGN ITEGIUM.

In old English law.

The curfew, or evening bell. Cowell. See Curfew.

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## IGNOMINY.

Public disgrace; Infamy; reproach; dishonor. Ignominy is the op- posite of esteem. Wolff, f 145. See Brown v. Kingsley, 38 Iowa, 220.

5e apparatus — Not carried into the 5th edition (1979).

## IGNORAMUS.

Lat "We are igno- rant;” “We ignore it.” Formerly the grand Jury used to write this word on bills of In- dictment when, after having heard the evi- dence, they thought the accusation against the prisoner was groundless, intimating that, though the facts might possibly be true, the truth did not appear to them ; but now they usually write in English the words “Not a true bill,” or “Not found," if that Is their verdict ; but they are still said to ignore the bill. Brown.

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## IGNORANCE.

The want or absence of knowledge.

Ignorance of law is want of knowledge or acquaintance with the laws of the land in so far as they apply to the act, relation, duty, or matter under consideration. Igno- rance of fact is want of knowledge of some fact or facts constituting or relating to the subject-matter in

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hand. Marshall v. Cole- man. 187 111. 556, 58 N. E. 628; Haven v. Foster, 9 Pick. (Mass.) 130. 19 Am. Dec. 353.

Ignorance is not a state of the mind in the sense in which sanity and insanity are. When

the mind is ignorant of a fact, its condition still remains sound ; the power of thinking, of judging, of willing, is just as complete before communication of the fact as after ; the essence or texture, so to speak, of the mind, is not, as in the case of insanity, affected or impaired. Ignorance of a particular fact consists in this: that the mind, although sound and capable of healthy action, has never acted upon the fact in question, because the subject has never been brought to the notice of the perceptive faculties. Meeker v. Boylan, 28 N. J. Law, 274.

Synonyms. “Ignorance” and “error” or "mistake” are not convertible terms. The former is a lack of information or absence of knowledge ; the latter, a misapprehension or confusion of information, or a mistaken supposition of the possession of knowledge. Error as to a fact may imply ignorance of the truth ; but ignorance does not necessari- ly Imply error. Hutton v. Edgerton, 6 Rich. (S. C.) 489; Culbreath ▼. Culbreath, 7 Ga. 70, 50 Am. Dec. 375.

Essential ignorance is ignorance in re- lation to some essential circumstance so inti- mately connected with the matter in question, and which so influences the parties, that it in- duces them to act in the business. Poth. Vente. nn. 3, 4 ; 2 Kent. Comm. 367. Non-essential or accidental ignorance is that which has not of itself any necessary connection with the business in question, and which is not the true consideration for entering into the contract. In- voluntary ignorance is that which does not proceed from choice, and which cannot be over- come by the use of any means of knowledge known to a person and within his power; as the ignorance of a law which has not yet been promulgated. Voluntary ignorance exists when a party might, by taking reasonable pains, have acquired the necessary knowledge. For ex- ample. every man might acquire a knowledge of the laws which have been promulgated. Doct & Stud. 1, 46 ; Plowd. 343.

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**[Scripture] — Scripture**

**[Luke 23:34, KJV]**

Then said Jesus, Father, forgive them; for they know not what they do. And they parted his raiment, and cast lots.

Why: The entry treats ignorance as bearing on liability; the verse pleads ignorance in mitigation of culpability itself — 'they know not what they do' — in Jesus' own verbatim speech from the cross.

## IGNORANTIA.

Lat. Ignorance ; want of knowledge. Distinguished, from mistake, (error.) or wrong conception. Mackeld. Rom. Law, | 178; Dig. 22, 6. Divided by Lord Coke into ipnorantia facli (Ignorance of fact) and ignorantia juris, (ignorance of law.) And the former, he adds, is twofold. — lec- tionis et lingua, (Ignorance of reading and ignorance of language.) 2 Coke, 3b.

Ignorantia eorum quae quia scire ten- etnr non ezensat. Ignorance of those things which

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one is bound to know excuses not. Hale, P. C. 42; Broom, Max. 267.

Ignorantia faeti ezensat. Ignorance of fact excuses or is a ground of relief. 2 Coke. 3b. Acts done and contracts made under mistake or ignorance of a material fact are voidable and relievable in lnw and equity. 2 Kent, Comm. 491, and notes.

Ignorantia faeti ezensat, ignorantia juris non ezensat. Ignorance of the fact excuses; ignorance of the law excuses not. Every man must be taken to be cognizant of the law ; otherwise there Is no saying to what extent the excuse of ignorance may not be carried. 1 Coke. 177 ; Broom, Max. 253.

Ignorantia juris quod quisqne tenetnr scire, nemlnem excnsat. Ignorance of the [or a] law, which every one Is bound to know, excuses no man. A mistake in point of law is, in criminal cases, no sort of de- fense. 4 Bl. Comm. 27; 4 Steph. Comm. 81; Broom, Max. 253 ; 7 Car. & P. 456. And, in civil cases, ignorance of the law, with a full knowledge of the facts, furnishes no ground, either in law or equity, to rescind agreements, or reclaim money paid, or set aside solemn acts of the parties. 2 Kent, Comm. 401, and note.

Ignorantia Juris sui non prsejndicat juri. Ignorance of one's right does not prej- udice the right Lofft, 552.

Ignorantia legis nemlnem excnsat. Ig- norance of law excuses no one. 4 Bouv. Inst no. 3828; 1 Story, Eq. Jur. { 111; 7 Watts, 374.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ignorantia eorum quae quis scire tenetur non excusat — ignorance of those things which one is bound to know excuses not (Hale, P.C. 42, as cited in the entry)]**

Ignorance excuses only what one could not be bound to know — ignorance of what one is bound to know is no excuse.

Why: Genuine: the entry's subject is ignorance and it quotes this maxim from Hale with the cite; the maxim states the operative limit of the ignorance excuse. Latin quoted verbatim as the entry gives it.

## IGNORATIO ELENCHI.

Lat. A term of logic, sometimes applied to pleadings and to arguments on appeal, which signifies a mistake of the question, that is, the mistake of one who, failing to discern the real ques- tion which he is to meet and answer, ad- dresses his allegations or arguments to a collateral matter or something beside the point See Case upon the Statute for Dis- tribution, Wythe (Va.) 309.

Ignoratis terminis artis, ignoratur et

an. Where the terms of an art are un- known, the art itself is unknown also. Co. Lift. 2a.

IGNORE. 1. To be Ignorant of, or un- acquainted with.

2. To disregard willfully; to refuse to recognize; to decline to take notice of. See Cleburne County v. Morton, 09 Ark. 48, 60

S. W. 307.

3. To reject as groundless, false or un- supported by evidence; as when a grand Jury ignores

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a bill of indictment.

Xgnoseitnr el qui aanguinem mum qnaliter redemptnm volnit. The law holds him excused from obligation who chose to redeem his blood (or life) upon any terms. Whatever a man may do under the fear of losing his life or limbs will not be held bind- ing upon him in law. 1 Bl. Comm. 131.

5e apparatus — Not carried into the 5th edition (1979).

# X

### XKENILD STREET.

One of the four great Roman roads in Britain; supposed to be so called from the Iceni.

5e apparatus — Not carried into the 5th edition (1979).

# O

### OX.

In old pleading. Bad; defective in law ; null ; naught ; the opposite of good or valid.

5e apparatus — Not carried into the 5th edition (1979).

# I

### ILL FAME.

Evil repute; notorious bad character. Houses of prostitution, gaming

houses, and other such disorderly places are called “houses of 111 fame," and a person who frequents them is a person of ill fame. See Boles v. State, 46 Ala. 206.

5e apparatus — Not carried into the 5th edition (1979).

# X

### XLLATA ET INVECTA.

Lat Things brought Into the house for use by the ten- ant were so called, and were liable to the Jus hypothecs of Roman law, Just as they are to the landlord's right of distress at common law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: invecta et illata — the Roman tacit hypothec over goods brought into the leased house, paralleled in the entry with the common-law right of distress]**

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Goods the tenant brings onto leased premises (invecta et illata) were tacitly hypothecated to the Roman landlord — the ancestor of the common-law landlord's distress for rent.

Why: Genuine: the entry itself draws the Roman-to-common-law parallel; the annotation names the Roman doctrine (invecta et illata) that gives the term its legal content. Stored headword key is the OCR form.

# I

## ILLEGAL.

Not authorized by law; Il- licit; unlawful; contrary to law.

Sometimes this term means merely that which lacks authority of or support from law ; but more frequently it imports a violation. Etymo- logically, the word seems to convey the nega- tive meaning only. But in ordinary use it has a severer, stronger signification ; the idea of censure or condemnation for breaking law is usually presented. But the law implied in il- legal is not necessarily an express statute. Things are called "illegal” for a violation of common-law principles. And the term does not imply that the act spoken of is immoral or wicked; it implies only a breach of the law. See State v. Haynorth, 3 Sneed (Tenn.) 65; Tiedt v. Carstensen, 01 Iowa. 334, 16 N. W. 214; Chadbourne v. Newcastle, 48 N. H. 199; People v. Kelly, 1 Abb. Prac. N. S., (N. X.) 437; Ex parte Scwartz, 2 Tex. App. 80. —Illegal conditions. All those that are im- possible, or contrary to law, immoral, or re- pugnant to the nature of the transaction.— Il- legal contract. An agreement to do any act forbidden by the law, or to omit to do any act enjoined by the law. Billingsley v. Clelland, 41 W. Va. 243, 23 S. B. 816.— Illegal inter- est. Usury; interest at a higher rate than the law allows. Parsons v. Babcock. 40 Neb. 119, 58 N. W. 726. — Illegal trade. Such traf- fic or commerce as is carried on in violation of the municipal law, or contrary to the law of nations. See Iixicit.

5e apparatus — Not carried into the 5th edition (1979).

## ILLEGITIMACY.

The condition before the law, or the social status, of a bastard; the state or condition of one whose parents were not intermarried at the time of his birth. Miller v. Miller, 18 Hun (N. X.) 509; Brown v. Belmarde, 3 Kan. 52.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: The entry is the bastard's condition before the law — his social and legal status; the verse states that status in its starkest scriptural form: exclusion from the congregation to the tenth generation.

## ILLEGITIMATE.

That which is con- trary to law; it is usually applied to bas- tards, or children born out of lawful wed- lock.

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The Louisiana Code divided illegitimate chil- dren into two classes: (1) Those born from

two persons who, at the moment when such children were conceived, could have lawfully intermarried; and (2) those who are born from persons to whose marriage there existed at the time some legal impediment. Both classes, however, could be acknowledged and take bv devise. Compton v. Prescott, 12 Rob. (La.) 56.

5e apparatus — Not carried into the 5th edition (1979).

## ILLEVLABLE.

Not leviable; that can- not or ought not to be levied. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ILLICENCIATTTS.

In old English law. Without license. Fleta, lib. 3, c. 6, i 12.

5e apparatus — Not carried into the 5th edition (1979).

## ILLICIT.

Not permitted or allowed; pro- hibited; unlawful; as an illicit trade; il-

Unit Intercourse. State v. Miller, 60 Vt. 90, 12 Atl. 526.

— Illicit connection. Unlawful sexual inter- course. State v. Kins. 9 S. 11. U28, 70 N. W. 104(5. — Illicit cohabitation. The living to- gether as man and wife of two persons who are not lawfully married, with the implication that they habitnallypractice fornication. See Rex v. Kalailoa, 4 Hawaii, 41.— Illicit distillery. One carried on without a compliance with, the provisions of the laws of the United States relating to the taxation of spirituous liquors.

U. S. v. Johnson (C. C.) 26 Fed. 6S4.— Illicit trade. Policies of marine insurance usually contain a covenant of warranty against “illicit trade,” meaning thereby trade which is for- bidden, or declared unlawful, by the laws of the country where the cargo is to be delivered. “It is not the same with ‘contraband trade,’ although the words are sometimes used as synonymous. Illicit or prohibited trade is one which cannot be carried on without a distinct violation of some positive- law of the country where the transaction is to take place.” 1 Pars. Mar. Ins. 614.

5e apparatus — Not carried into the 5th edition (1979).

## ILLICITE.

Lat. Unlawfully. This word has a technical meaning, and Is requisite In an Indictment where the act charged is un- lawful; as In the case of a riot 2 Hawk.

P. C c. 25, | 96.

5e apparatus — Not carried into the 5th edition (1979).

## ILLICITUM COLLEGIUM.

Lat An il- legal corporation.

5e apparatus — Not carried into the 5th edition (1979).

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## ILLITERATE.

Unlettered ; ignorant ; unlearned. Generally used of one who can- not read and write. See In re Succession of Carroll, 28 La. Ann. 388.

5e apparatus — Not carried into the 5th edition (1979).

## ILLOCABLE.

Incapable of being placed out or hired.

5e apparatus — Not carried into the 5th edition (1979).

## ILLUD.

Lat That

Hind, qnod alias licitum non est, n fr- ees sitas fadt licitum ; et necessltas In- dwelt privileginm quoad Jura prlvata.

Bac. Max. That which is otherwise not per- mitted, necessity permits; and necessity makes a privilege as to private rights.

Hind, qnod alteri nnltnr, entingnitnr, neque amplius per se vac are licet.

Godol. Ecc. Law, 169. That which is unit- ed to another is extinguished, nor can it be any more Independent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 12:3-4, KJV]**

But he said unto them, Have ye not read what David did, when he was an hungred, and they that were with him; How he entered into the house of God, and did eat the shewbread, which was not lawful for him to eat, neither for them which were with him, but only for the priests?

Why: The entry is the necessity maxim — what is otherwise not permitted, necessity permits; the verses give its scriptural instance, cited by Jesus himself: David eating what 'was not lawful,' hunger warranting the act. De...

## ILLUSION.

In medical Jurisprudence. An image or Impression in the mind, excited by some external object addressing itself to one or more of the senses, but which. In- stead of corresponding with the reality, Is perverted, distorted, or wholly mistaken, the error being attributable to the Imagination of the observer, not to any defect in the or- gans of sense. See Hallucination, and see “ Delusion ," nnder Insanitt.

5e apparatus — Not carried into the 5th edition (1979).

## ILLUSORY.

Deceiving by false appear- ances ; nominal, • as distinguished from sub- stantial.

— Illusory appointment. Formerly the ap- pointment of a merely nominal share of the

property to ODe of the objects of a power, In order to escape the rule that an exclusive ap- pointment could not be made unless it was au- thorized by the instrument 'creating the power, was considered illusory and void in equity. But this rule has been abolished in

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England. (1 Wm. IV. c. 46 ; 37 & 38 Viet. c. 37.) Sweet. See Ingraham v. Meade, 3 Wall. Jr. 32, 13 Fed. Cas. 50. — Illusory appointment act. The statute 1 Wm. IV. c. 46. Thia statute enacts that no appointment made after its passing, (July 16. 1830,) in exercise of a power to ap- point property, real or personal, among several objects, shall be invalid, or impeached in eq- uity, ou the ground that an unsubstantial, il- lusory, or nominal share only was thereby ap- pointed, or left unappointed, to devolve upon any one or more of the objects of such power; but that the appointment shall be valid m equity, as at law. See, too, 37 & 38 Viet, c. 37. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ILLUSTRIOUS.

The prefix to the title of a prince of the blood in England.

5e apparatus — Not carried into the 5th edition (1979).

## IMAGINE.

In English law. In cases of treason the law makes it a crime to Imag- ine the death of the king. But, In order to complete the crime, this act of the mind must be demonstrated by some overt act The terms “Imagining” and “compassing” are in this connection synonymous. 4 Bl. Comm. 78.

IMAN, IMAM, or IMAUM. A Moham- medan prince having supreme spiritual as well as temporal power ; a regular priest of the mosque,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: treason — compassing or imagining the king's death requires proof by overt act (4 Blackstone, Commentaries 78, cited in the entry); cf. U.S. Const. Art. III, §3 — no attainder of treason 'unless on the testimony of two witnesses to the same overt act']**

To 'compass or imagine' the sovereign's death is treason — but the imagining, being an act of the mind, must be demonstrated by some overt act proved against the accused.

Why: Genuine: the entry states the overt-act requirement with a real authority; the annotation adds its American constitutional form, quoted from the Constitution itself. Nothing invented.

**[Scripture] — Scripture**

**[Psalm 2:1-2, KJV]**

Why do the heathen rage, and the people imagine a vain thing? The kings of the earth set themselves, and the rulers take counsel together, against the LORD, and against his anointed, saying,

Why: The entry makes it treason to 'imagine' the death of the king; the verses name the same act — the people 'imagine a vain thing,' the rulers taking counsel against the LORD's anointed. The imagining against the soverei...

## IMBARGO.

An old form of “embargo,” (q. v .) St 18 Car. II. c. 5.

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## IMBASING OF MONEY.

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The act of

mixing the specie with an alloy below the standard of sterling. 1 Hale, P. C. 102.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: The entry is the debasement of coin below the sterling standard; the verse condemns the false measure itself — debased specie is the false balance, an abomination where the just weight is delight.

## IMBECILITY.

See Insanitt.

5e apparatus — Not carried into the 5th edition (1979).

## IMBEZZLE.

An occasional or obsolete form of “embezzle," (q. t>.)

5e apparatus — Carried into the 5th edition (1979).

## IMBLADARE.

In old English law. To plant or sow grain. Bract fol. 1766.

5e apparatus — Not carried into the 5th edition (1979).

## IMBRACERY.

See Embbacebt.

5e apparatus — Carried into the 5th edition (1979).

## IMBROCUS.

A brook, gutter, or water- passage Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## IMITATION.

The making of one thing In the similitude or likeness of another; as, counterfeit coin is said to be made “In imita- tion" of the genuine. An Imitation of a trade-mark is that which so far resembles the genuine trade-mark as to be likely to in- duce the belief that it Is genuine, whether by the use of words or letters similar In ap- pearance or In sound, or by any sign, device, or other means. Pen. Code N. V. 1903, f 368; Wagner v. Daly, 67 Hun, 477, 22 N.

Y. Supp. 493 ; State v. Harris, 27 N. C. 294.

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**[Law] — Law**

**[Law: trademark infringement — likelihood of confusion; an imitation 'likely to induce the belief that it is genuine' infringes (the entry's definition; Wagner v. Daly, 67 Hun. 477, 22 N.Y. Supp.**

**493, cited in the entry)]**

An imitation of a trade-mark infringes when it so resembles the genuine mark as to be likely to induce belief that it is genuine — the likelihood-of-confusion test.

Why: Genuine: the entry states the test with a real cited authority; the annotation names the live doctrine (likelihood of confusion) the definition embodies. Borderline but kept — it names the doctrine rather than restating.

## IMMATERIAL.

Not material, essential, or necessary; not Important or pertinent; not decisive.

— Immaterial averment. An averment al- leging with needless particularity or unneces- sary circumstances what is material and neces- sary, and which might properly have been stat- ed more generally, and without such circum- stances and particulars; or, in other words, ■a statement of unnecessary particulars in con- nection with and as descriptive of what is ma- terial. Gould, PL c. 3, 8 188; Pharr v. Bach- elor, 3 Ala. 245; Green v. Palmer, 15 Cal. 416, 76 Am. Dec. 402; Dunlap v. Kelly, 105 Mo. App. 1, 78 S. W. 664.— Immaterial Is- sue. In pleading. An issue taken on an Im- material point ; that is, a noint not proper to decide the action. Steph. Pl. 09, 130 ; 2 Tidd, Pr. 921.

IMMEDIATE. 1. Present; at once; without delay ; not deferred by any Interval of time. In this sense, the word, without any very precise signification, denotes that action is or must be taken either instantly or without any considerable loss of time.

Immediately does not, in legal proceedings, necessarily import the exclusion of any inter- val of time. It is a word of no very definite signification, and is much in subjection to its grammatical connections. Howell v. Gaddis, 31 N. J. Law, 313.

2. Not separated in respect to place; not separated by the Intervention of any Inter- mediate object, cause, relation, or right. Thus we speak of an action as prosecuted for the “Immediate benefit” of A., of a devise ns made to the “Immediate Issue” of B., etc.

— Immediate cause. The last of a series or chain of causes tending to a given result, and which, of itself, and without the intervention of any further cause, directly produces the result or event. A cause may be immediate in this sense, and yet not “proximate;” and con- versely, the proximate cause (that which di- rectly and efficiently brings about the result) mav not be immediate. The familiar illus- tration is that of a drunken man falling into the water and drowning. His intoxication is the proximate cause of his death, if it ran be said that he would not have fallen into the water when sober; but the immediate Cause of death is suffocation, by drowning. See Davis v. Standish. 26 Hun (N. Y.), 615; Deisenrieter v. Kraus-Merkel Malting Co.. 97 Wis. 279. 72

N- 'V. 735. Compare Longabaugh v. Railroad Co.. 9 Nev. 271. See. also. Proximate.— Im- mediate descent. See Descent.

5e apparatus — Carried into the 5th edition (1979).

## IMMEDIATELY.

“It is impossible to lay down any hard and fast rule as to what Is the meaning of the word ‘Immediately’ in all cases. The words ‘forthwith’ and ‘Im- mediately’ have the same

meaning. They are stronger than the expression *wlthln a reasonable time.’ and Imply prompt, vigor- ous action, without any delay, and whether there has been such action is a question of fact having regard to the circumstances of the particular case.” Cockburn, C. J., in Reg. v. Justices of Berkshire, 4 Q. B. Div. 471.

5e apparatus — Carried into the 5th edition (1979).

## IMMEMORIAL.

Beyond human mem- ory ; time out of mind.

—Immemorial possession. In Louisiana. Possession of which no man living has seen

the beginning, and the existence of which ho has learned from his elders. Civ. Code La. art 762. — Immemorial nsage. A practice which has existed time out of mind; cuBtom; prescription. Miller v. Garlock, 8 Barb. (N. Y.) 154.

5e apparatus — Carried into the 5th edition (1979).

## IMMEDBLES.

Fr. These are, in French law, the immovables of English law. Things are inimeubles from any one of three causes: (1) From their own nature, e. g., lands and houses; (2) from their destina- tion, e. g., animals and instruments of agri- culture when supplied by the landlord; or (3) by the object to which they are annexed, e. p., easements. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## IMMIGRATION.

The coming into a country of foreigners for purposes of per- manent residence. The correlative term “emigration” denotes the act of such per- sons in leaving their former country.

5e apparatus — Carried into the 5th edition (1979).

## IMMINENT DANGER.

In relation to homicide in self-defense, this term means immediate danger, such as must be instant- ly met, such as cannot be guarded against by calling for the assistance of others or the protection of the law. D. 8. v. Outer- bridge, 27 Fed. Cas. 390; State v. West, 45 La. Ann. 14, 12 Sonth. 7; State v. Smith, 43 Or. 109, 71 Pac. 973. Or, as otherwise defined, such an appearance of threatened and impending injury as would put a rea- sonable and prudent man to his instant de- fense. State v. Fontenot, 50 La. Ann. 537, 23 South. 634, 69 Am. St. Rep. 455 ; Shorter v. People, 2 N. Y. 201, 51 Am. Dec. 286.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: self-defense — imminent-danger requirement; judged by the reasonable-person standard (the entry's authorities: U.S. v. Outerbridge, 27 Fed. Cas. 390; State v. Smith, 43 Or. 109, 71 Pac. 973)]**

Deadly force in self-defense is justified only against imminent danger — danger so immediate it must be met at once and cannot await the law's protection — judged by what would put a reasonable and

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prudent man to his instant defense.

Why: Genuine: the entry defines the self-defense standard with real authorities; the annotation states the doctrine those authorities establish. Citations taken from the body.

## IMMISCERE.

Lot In the civil law. To mix or mingle with; to meddle with; to Join with. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## IMMITTERE.

Lat. In the civil law.

To put or let Into, as a beam Into a wall. Galvin; Dig. 50, 17, 242, 1.

In old English law. To put cattle on a common. Fleta, lib. 4, c. 20, | 7.

Ixnmobilia si turn seqnnntur. Immova- ble things follow their site or position; are governed by the law of the place where they are fixed. 2 Kent, Comm. 67.

5e apparatus — Not carried into the 5th edition (1979).

## IMHOBHJ8.

Lat Immovable. Immo- bilia or res immobile », immovable things, such as lands and buildings. Mackeld. Rom. Law, 8 160.

5e apparatus — Not carried into the 5th edition (1979).

## IMMORAL.

Contrary to good morals; Inconsistent with the rules and principles of morality which regard men as living In a community, and which are necessary for the public welfare, order, and decency.

—Immoral consideration. One contrary to good morals, and therefore invalid. Contracts based upon an immoral consideration are gen- erally void. — Immoral contracts. Contracts founded upon considerations contra bonot mores are void.

: IMMORALITY

. IMMORALITY. That which Is contra bonos mores. See Immoral.

5e apparatus — Carried into the 5th edition (1979).

## IMMOVABLES.

In the civil law. Prop- erty which, from its nature, destination, or the object to which it is applied, cannot move Itself, or be removed.

Immovable things are, in general, such as cannot either move themselves or be removed from one place to another. But this defini- tion, strictly speaking, is applicable only to such things as are immovable by their own nature, and not to such as are so only by the disposition of the law. Civ. Code La. art 462; Mt Carmel Fruit Co. v. Webster, 140 Cal. 183, 73 Pac. 826; Sullivan v. Richard- son, 33 Fla. 1, 14 South. 692.

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## IMMUNITY.

An exemption from serv- ing in' an office, or performing duties which the law generally requires other citizens to perform. Long v. Converse, 91 U. S. 113, 23

L. Ed. 233; Ex parte Levy, 43 Ark. 54, 51 Am. Rep. 550; Lonas v. State, 3 Heisk. (Tenn.) 306 ; Douglass v. Stephens, 1 Del. Ch. 470.

5e apparatus — Carried into the 5th edition (1979).

## IMPAIR.

To weaken, diminish, or relax, or otherwise affect in an Injurious manner. Davey v. Aetna L. Ins. Co. (C. C.) 20 Fed. 482; State v. Carew, 13 Rich. Law (S. C.) 541, 91 Am. Dec. 245; Swinburne v. Mills, 17 Wash. 611, 50 Pac. 489, 61 Am. St. Rep. 932.

, IMPAIRING THE OBLIGATION OF

CONTRACTS. For the meaning of this phrase in the constitution of the United States, see 2 Story, Const. §§ 1374-1399; 1 Kent, Comm. 413-422; Pom. Const Law; Black, Const Law (3d Ed.) p. 720 et seq.

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**[Law] — Law**

**[Law: Contract Clause — U.S. Const. Art. I, §10, cl. 1: 'No State shall ... pass any Law impairing the Obligation of Contracts']**

'Impairing the obligation of contracts' is the constitutional phrase barring states from retroactively undermining contractual obligations.

Why: Genuine: the entry exists to gloss the constitutional phrase and cites the commentaries (Story, Kent) that expound it; the annotation pins the phrase to its constitutional source, quoted verbatim from the Constitution.

## IMPANEL.

Ia English practice. To

impanel a jury signifies the entering by the sheriff upon a piece of parchment, termed a “panel,” the names of the jurors who have been summoned to appear in court on a certain day to form a jury of the country to hear such matters as may be brought • before them. Brown.

In American practice. Besides the meaning above given, “impanel” signifies the act of the clerk of the court in making up a list of the jurors who have been selected for the trial of a particular cause.

Impaneling has nothing to do with drawing, selecting, or swearing jurors, but means simply making the list of those who have been select- ed. Porter v. People, 7 How. Prac. (N. Y.)

5e apparatus — Carried into the 5th edition (1979).

## IMP ARC ARE.

In old English law. To impound. Reg. Orig. 926.

To shut up, or confine in prison, Inducti sunt in carcerem et imparcati, they were carried to prison and shut up. Bract, fol. 124.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IMP ARG AMENTUM.

The right of im- pounding cattle.

5e apparatus — Not carried into the 5th edition (1979).

## IMPARL.

To have license to settle a litigation amicably; to obtain delay for ad- justment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IMPARLANCE.

In early practice, im- parlance meant time given to either of the parties to an action to answer the pleading of the other. It thus amounted to a con- tinuance of the action to a further day. Literally the term signified leave given to the parties to talk together; i. e., with a view to settling their differences amicably. But in modern practice it denotes a time given to the defendant to plead.

A general imparlance is the entry of a genera] prayer and allowance of time to plead till the next term, without reserving to the defendant the benefit of any exception ; so that after such an imparlance the defendant cannot object to the jurisdiction of the court, or plead any mat- ter m abatement. This kind of imparlance is always from one term to another. Colby v. Knapp, 13 N. H. 175; Mack v. Lewis, 67 Vt. 383, 31 Atl. 888.

A general special imparlance contains a saving of all exceptions whatsoever, so that the de- fendant after this may plead not only in abate- ment, but he may also plead a plea which af- fects the jurisdiction of the court, as privilege. He cannot, however, plead a tender, and that he was always ready to pay, because by craving time he admits that he is not ready, and so falsifies his plea.

A special imparlance reserves to the defend- ant all exceptions to the writ, bill, or count: and therefore after it the defendant may plead in abatement, though not to the jurisdiction of the court. 1 Tidd, Pr. 462, 463.

5e apparatus — Not carried into the 5th edition (1979).

## IMFARSONEE.

L. Fr. In ecclesias- tical law. One who is inducted and in pos- session of a benefice. Parson lmparsonee, (persons impersonate.) Cowell ; Dyer, 40.

5e apparatus — Not carried into the 5th edition (1979).

## IMPATRONIZATION.

In ecclesiastical law. The act of putting into full possession of a benefice.

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## IMFEACH.

To accuse; to ebarge a lia- bility upon; to sue.

To dispute, disparage, deny, or contradict ; as, to impeach a judgment or decree; or as used in the rule that a jury cannot “Impeach their verdict.” See Wolfgram v. Schoepke, 123 Wis. 19, 100 N. W. 1056.

To proceed against a public officer for crime or misfeasance, before a proper court, by the presentation of a written accusation called "articles of impeachment.”

In the law of evidence. To call in ques- tion the veracity of a witness, by means of evidence adduced for that purpose.

5e apparatus — Not carried into the 5th edition (1979).

## IMPEACHMENT.

A criminal proceed- ing against a public officer, before a quasi political court, instituted by a written accu- sation called "articles of impeachment;” for example, a written accusation by the house of representatives of the United States to

the senate of the -United States against an officer.

In England, a prosecution by the house of commons before the house of lords of a com- moner for treason, or other high crimes and misdemeanors, or of a peer for any crime.

In evidence. An allegation, supported by proof, that a witness who has, been ex- amined is unworthy of credit

— Article* of impeachment. The formal written allegation of the causes for an im- peachment, answering the same purpose as an indictment in an ordinary criminal proceeding. —Collateral impeachment. The collateral impeachment of a judgment or decree is an attempt made to destroy or evade its effect as an estoppel, by reopening the merits of the cause or showing reasons why the judgment should not have been given or should not have a conclusive effect, in any collateral proceed- ing, that is, in any action or proceeding other than that in which the judgment whs given, or other than an appeal, certiorari, or other di- rect proceeding to review it — Impeachment of annuity. A term sometimes used in Eng- lish law to denote anything that operates as a hindrance, impediment or obstruction of the making of the profits out of which the annuity is to arise. Pitt v. Williams, 4 Adol. & El. 885.— Impeachment of waste. Liability for waste committed ; or a demand or suit for com- pensation for waste committed upon lands or tenements by a tenant thereof who. having only a leasehold or particular estate, had no right to commit waste. See 2 Bl. Comm. 283 ; San- derson v. Jones, 6 Fla. 480, 63 Am. Dec. 217. —Impeachment of witness. Proof that a witness who has testified in a cause is unworthy of credit. White v. Railroad Co., 142 Ind. 648, 42 N. E. 456; Com. v. Welch, 111 Ky. 530, 63 S. W. 984; Smith v. State, 109 Ga. 479, 35 S. E. 59.

IMPECHI ARE . To impeach, to accuse, or prosecute for felony or treason.

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**[Law] — Law**

**[Law: U.S. Const. Art. I, §2, cl. 5 (House's 'sole Power of Impeachment'); Art. I, §3, cl. 6 (Senate's 'sole Power to try all Impeachments'); Art. II, §4 ('Treason, Bribery, or other high Crimes and Misdemeanors')]**

Impeachment is the House's accusation and the Senate's trial of a public officer — for 'Treason, Bribery, or other high Crimes and Misdemeanors' — before a quasi-political court.

Why: Genuine: the entry describes the impeachment process without citing its source; the annotation supplies the constitutional loci, quoted from the Constitution itself. Adds the source rather than restating.

## IMPED EENS.

In old practice. One who binders; an lmpedlent The defendant or deforciant in a fine was sometimes so called. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IMPED IMENTO.

In Spanish law. A prohibition to contract marriage, established by law between certain persons.

5e apparatus — Not carried into the 5th edition (1979).

## IMPEDIMENTS.

Disabilities, or hin- drances to the making of contracts, such as coverture, infancy, want of reason, etc.

In the civil law. Bars to marriage.

Absolute impediments are those which prevent the person subject to them from marrying at all, without either the nullity of marriage or its being punishable. Diri- ment impediments are those which render a marriage void ; as where one of the contract- ing parties is unable to marry by reason of a prior undissolved marriage. Prohibitive impediments are those which do not render the marriage null, but subject the parties to a punishment Relative impediments are those which regard only certain persons with respect to each other; as between two par- ticular persons who are related within the prohibited degrees. Bowyer, Mod. Civil Law, 44, 45.

5e apparatus — Not carried into the 5th edition (1979).

## IMPEDITOR.

In old English law. A disturber in the action of quare impedit. St Marlb. c. 12.

5e apparatus — Not carried into the 5th edition (1979).

## IMPENSAI.

Let In the civil law. Ex- penses ; outlays. Mackeld. Rom. Law, | 168 ; Calvin. Divided into necessary, (necesso- rice,) useful, (utiles,) and tasteful or orna- mental, (voluptuaries.) Dig. 50, 16, 79. See Id. 25, 1.

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## IMPERATIVE.

See Dibectoby.

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## IMPERATOR.

Emperor. The title of the Roman emperors, and also of the Kings of England before the Norman conquest Cod. 1, 14, 12; 1 BL Comm. 242. See Em-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

## PEBOB.

**[TEXT INCOMPLETE — scan limitation]**

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# I

## IMPERFECT.

As used in various legal compound terms, this word means defective or incomplete; wanting in some legal or formal requisite; wanting in legal sanction or effectiveness ; as in speaking of imperfect “obligations,” “ownership,” “rights,” “title,” “usufruct,” or "war.” See those noons.

Imperil majectas eat tntelse sains. Co.

Litt 64. The majesty of the empire is the safety of its protection.

5e apparatus — Carried into the 5th edition (1979).

## IMPERITIA.

Let Unskillfulness; want of skill.

Imperitia calpa adnumeratur. Want of skill is reckoned as culpa; that is, as blam- able conduct or neglect Dig. 50, 17, 132.

Imperitia eat maxima mech&nlcomm poena. Unskillfulness is the greatest pun- ishment of mechanics; [that is, from its effect in making them liable to those by whom they are employed.] 11 Coke, 54o. The word "pcena." in some translations is erroneously rendered “fault”

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Imperitia culpae adnumeratur — want of skill is reckoned as culpa, as blameable**

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**conduct or neglect (Dig. 50, 17, 132, as cited in the entry)]**

Want of skill counts as fault — the unskilled practitioner answers for the harm his unskillfulness causes, as if for negligence.

Why: Genuine: the maxim IS the entry's doctrine — the Roman root of professional-negligence liability — quoted with the entry's own Digest cite. Positive application of the incidental-maxim rule: here the maxim illuminates...

## IMPERITJM.

The right to command, which includes the right to employ the force of the state to enforce the laws. This is one of the principal attributes of the power ot the executive. 1 Toulller, no. 58.

5e apparatus — Not carried into the 5th edition (1979).

## IMPER8ONALITA8.

Lat Imperson- ality. A mode of expression where no refer- ence is made to any person, such as the expression “ut dicitur," (as is said.) Co. Litt 3526.

Impersonalltaa non oonelndit neo llgat.

Co. Litt 3526. Impersonality neither con- cludes nor binds.

5e apparatus — Not carried into the 5th edition (1979).

## IMPERTINENCE.

Irrelevancy; the fault of not properly pertaining to the issue or proceeding. The introduction of any mat- ters into a bill, answer, or other pleading or proceeding in a suit, which are not prop- erly before the court for decision, at any particular stage of the suit Story, Eq. PL

i 266; Harrison v. Perea, 168 D. 8. 811, 18 Sup. Ct 129, 42 I* Ed. 478.

In practice. A question propounded to a witness, or evidence offered or sought to be elicited, Is called "Impertinent” when -It has no logical bearing upon the issue, is not necessarily connected with It, or does not belong to the matter In hand. On the dis- tinction between pertinency and relevancy, we may quote the following remark of Dr. Wharton: “ Relevancy Is that which con- duces to the proof of a pertinent hypothesis ; a pertinent hypothesis being one which, If sustained, would logically Influence the Is- sue.” 1 Whart Ev. { 20.

5e apparatus — Carried into the 5th edition (1979).

## IMPERTINENT.

In equity pleading.

That which does not belong to a pleading, Interrogatory, or other proceeding; out of place; superfluous; Irrelevant.

At law. A term applied to matter not necessary to constitute the cause of action or ground of defense. Cowp. 683 ; 6 East, 275 ; Tucker v. Randall, 2 Mass. 283. It consti- tutes surplusage, (which see.)

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**IMPE8CARE.**

In old records. To Im- peach or accuse. Impescatua, Impeached. Blount

IMPETITIO VAST!. Impeachment of waste, («. v.)

5e apparatus — Not carried into the 5th edition (1979).

**IMPETRARE.**

In old English practice. To obtain by request as a writ or privilege. Bract fols. 67, 172b. This application of the word seems to be derived from the civil law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

**IKPETRATION.**

In old English law. The obtaining anything by petition or en- treaty. Particularly, the obtaining of a benefice from Rome by solicitation, which benefice belonged to the disposal of the king or other lay patron. Webster; CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**IMPIER.**

Umpire, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

**IMPIERMENT.**

Impairing or prejudic- ing. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The entry is the lessening or prejudicing of another's right or estate — the wrong done to what is his; the verse states the root prohibition in direct second-person divine command, of which every such impairing is a...

# X

**XMPIGNORATA.**

Pledged ; given In pledge, (pignori data;) mortgaged. A term applied In Bracton to land. Bract fol. 20.

5e apparatus — Not carried into the 5th edition (1979).

# I

**IMPIGNORATION.**

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The act of pawn- ing or putting to pledge.

Imping ei erudelia jndioatndus est qui Ilbertati non favet. He Is to be Judged impious and cruel who does not favor liberty. Co. Litt 124.

nCPLAOITARE. Let To Implead; to sue.

5e apparatus — Not carried into the 5th edition (1979).

## IMPLEAD.

In practice. To sue or pros- ecute by due course of law. People v. Clarke, 9 N. T. 368.

5e apparatus — Carried into the 5th edition (1979).

## IMPLEADED.

Sued or prosecuted; used particularly In the titles of causes where there are several defendants ; as “A. B., Im- pleaded with C. D.”

5e apparatus — Not carried into the 5th edition (1979).

## IMPLEMENTS.

Such things as are used or employed for a trade, or furniture of a house. Coolidge v. Choate, 11 Mete. (Mass.) 82.

Whatever may supply wants; particularly applied to tools, utensils, vessels, instruments of labor; as, the Implements of trade or of husbandry. Goddard v. Chaffee, 2 Alien (Mass.) 395, 79 Am. Dec. 796; Sallee v. Waters, 17 Ala. 486; Rayner v. Whlcher, 6 Allen (Mass.) 294; In re Slade’s Estate, 122 Cal. 434, 55 Pan 158.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tools-of-the-trade exemption — implements of trade exempt from execution (the entry's authorities: Coolidge v. Choate, 11 Metc. (Mass.) 82; Goddard v. Chaffee, 2 Allen (Mass.) 395)]**

Implements of trade — the tools of a man's calling — are shielded from execution by exemption statutes; the cited cases decide what counts within the shield.

Why: Genuine: the entry defines the term through exemption cases; the annotation states the exemption rule those cases apply — the legal consequence, not a restatement. Citations taken from the body.

## IMPLICATA.

A term used in mercan- tile law, derived from. the Italian. In order to avoid the risk of making fruitless voyages, merchants have been in the habit of receiv- ing small adventures, on freight, at so much per cent, to which they are entitled at all events, even if the adventure be lost; and this is called “implicata.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## IMPLICATION.

Intendment or infer- ence, as distinguished from the actual ex- pression of a thing in words. In a will, an estate may pass by mere implication, with- out any express words to direct its course. 2 BL Comm. 381.

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An inference of something not directly de- clared, but arising from what is admitted or expressed.

In construing a will conjecture must not be taken for implication ; but necessary implica- tion means, not natural necessity, but so strong a probability of intention that an intention con- trary to that which is imputed to the testator cannot be supposed. 1 Ves. A B. 466.

“Implication” is also used in the sense of “inference;” i. e., where the existence of an Intention is inferred from acts not done for the sole purpose of communicating it, but for some other purpose. Sweet

— Necessary implication. In construing a will, necessary Implication means not natural necessity, but so strong a probability of in- tention that an intention contrary to that which is imputed to the testator cannot be supposed. Wilkinson v. Adam, 1 Ves. & B. 466; Gilbert v. Craddock, 67 Kan. 346, 72 Pac. 869: Whit- field v. Garris. 134 N. C. 24, 45 S. E 904.

5e apparatus — Carried into the 5th edition (1979).

## IMPLIED.

This word is used in law as contrasted with “express;” i. «., where the intention in regard to the subject-matter is not manifested by explicit and direct words, but is gathered by implication or necessary deduction from the circumstances, the gen- eral language, or the conduct of the parties.

As to implied “Abrogation,” “Agreement,” “Assumpsit,” “Condition,” “Confession,” “Consent,” “Consideration,” “Contract,"

“Covenant,” “Dedication,” “Easement,” "In- vitation,” “Malice,” “Notice,” “Powers,” “Trust,” “Use,” “Waiver,” and “Warranty," see those titles.

5e apparatus — Carried into the 5th edition (1979).

## IMPORTATION.

The act of bringing goods and merchandise Into a country from a foreign country.

5e apparatus — Carried into the 5th edition (1979).

## IMPORTS.

Importations ; goods or other property Imported or brought into the coun- try from a foreign country.

5e apparatus — Not carried into the 5th edition (1979).

## IMPORTUNITY.

Pressing solicitation ; urgent request; application for a claim or favor which Is urged with troublesome fre- quency or pertinacity. Webster.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 11:8, KJV]**

I say unto you, Though he will not rise and give him, because he is his friend, yet because of his importunity he will rise and give him as many as he needeth.

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Why: The entry defines importunity as pressing, persistent solicitation; the verse uses the very word for it — the friend at midnight prevailing not by friendship but by importunity — in Jesus' own verbatim speech.

## IMPOSITION.

An Impost; tax; contri- bution. Paterson v. Society, 24 N. J. Law, 400; Singer Mfg. Co. v. Heppenheimer, 68

N. J. Law, 633, 34 Atl. 1061, 32 L. R. A. 643.

5e apparatus — Carried into the 5th edition (1979).

## IMPOSSIBILITY.

That which, In the constitution and course of nature or the law, no man can do or perform. See Klauber v. San Diego Street-Car. Co., 05 Cal. 353, 30 Pac. 555 ; Reid v. Alaska Packing Co., 43 Or. 420, 73 Pac. 337.

Impossibility la of the following several sorts:

An act is physically Impossible when it is contrary to the course of nature. Such an Impossibility may be either absolute, i. e., Impossible In any case. (e. g., tor A. to reach the moon,) or relative, (sometimes called “Impossibility in fact,”) i. e., arising from the circumstances of the case, (e. g., for A. to make a payment to B., he being a de- ceased person.) To the latter class belongs what Is sometimes called “practical impossi- bility,” which exists when the act can be done, but only at an excessive or unreason- able cost. An act Is legally or juridically Impossible when a rule of law makes It Impossible to do It; e. g., tor A. to make a valid will before his majority. This class of acts must not be confounded with those which are possible, although forbidden by law, as to commit a theft An act Is logic- ally Impossible when it Is contrary to the nature of the transaction, as where A. gives property to B. expressly for his own benefit on condition that he transfers It to C. Sweet

Impoxibllinm anils oblIgatio eat.

There is no obligation to do Impossible things. Dig. 50, 17, 185 ; Broom, Max. 249.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: impossibility of performance — excuse and discharge (the entry's authority: Klauber v. San Diego Street-Car Co., 95 Cal. 353; see Taylor v. Caldwell (1863), the leading authority on discharge by supervening impossibility)]**

Where performance becomes physically or legally impossible, the promisor is excused — and a contract impossible from the outset is void; supervening impossibility discharges.

Why: Genuine: the entry classifies impossibility with real authorities; the annotation states the excuse/discharge doctrine the classification serves. Taylor v. Caldwell named in [Law:] form without a reporter gamble.

## IMPOSSIBLE CONTRACTS.

An Im- possible contract is one which the law will not hold binding upon the parties, because of the natural or legal Impossibility of the per- formance by one party of that which is the consideration for the promise of the other. 7 Wait Act. A Def. 124.

Impossible contracts, which will be deemed void in the eye of the law, or of which the

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performance will be excused, are such con- tracts as cannot be performed, either be- cause of the nature of the obligation under- taken, or because of some supervening event which renders the performance of the obliga- tion either physically or legally impossible. 10 Amer. & Eng. Enc. Law, 176.

5e apparatus — Not carried into the 5th edition (1979).

## IMPOSTS.

Taxes, duties, or Impositions. A duty on Imported goods or merchandise. Story, Const § 949. And see Norris v. Bos- ton, 4 Mete. (Mass.) 296; Pacific Ins. Co. v. Soule, 7 Wall. 435, 19 L, Ed. 93 ; Woodruff v. Parham, 8 Wall. 131, 19 L. Ed. 382; Dooley v. U. S., 183 D. S. 151, 22 Sup. Ct 62, 43 L. Ed. 128; Passenger Cases, 7 How. 407, 12 L. Ed. 702.

Impost is a tax received by the prince for such merchandises as are brought into any haven within his dominions from foreign na- tions. It may in some sort be distinguished from customs, because customs are rather that profit the prince maketh of wares shipped out; yet they are frequently confounded. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Import-Export Clause — U.S. Const. Art. I, §10, cl. 2: 'No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports ...']**

Imposts — duties on imported merchandise — are the constitutional category no state may lay on imports or exports without Congress's consent.

Why: Genuine: the entry's constitutional cases (Pacific Ins. Co. v. Soule, 7 Wall. 435; Woodruff v. Parham, 8 Wall. 131; Dooley v. U.S., 183 U.S. 151) orbit this clause; the annotation pins the category to its source, quot...

## IMPOTENCE.

In medical jurispru- dence. The incapacity for copulation or propagating the species. Properly used of the male; but It has also been used synon- ymously with “sterility.” Griffetb v. Grlff- eth, 162 111. 368, 44 N. E. 820; Payne v. Payne, 46 Minn. 467, 49 N. W. 230, 24 Am. St Rep. 240; Kempf v. Kempf, 34 Mo. 213.

Impotent!* excusat legem. Co. Litt. 29. The impossibility of doing what is re- quired by the law excuses from the perform- ance

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5e apparatus — Carried into the 5th edition (1979).

## IMPOTENTIA M, PROPERTY / PROPTER.

A qualified property, which may subsist In animals ferw natures on ac- count of their Inability, as where hawks, herons, or other birds build in a person’s trees, or conies, etc., make their nests or burrows In a person’s land, and have young there such person has a qualified property In them till they can fly or run away, and then such property expires. 2 Steph. Comm. (7th Ed.) 8.

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## IMPOUND.

To shut up stray animals or distrained goods In a pound. Thomas v. Harries, 1 Man. & G. 703 ; Goodsell v. Dunn- ing, 34 Conn. 257 ; Howard v. Bartlett 70 Vt 314. 40 Atl. 825.

To take into the custody of the law or of a court Thus, a court will sometimes im- pound a suspicious document produced at a trial.

5e apparatus — Carried into the 5th edition (1979).

## IMPRESCRIPTIBILITY.

The state or quality of being incapable of prescription; not of such a character that a right to it can be gained by prescription.

5e apparatus — Carried into the 5th edition (1979).

## IMPRESCRIPTIBLE RIGHTS.

Such rights as a person may use or not at pleas- ure, since they cannot be lost to him by

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the claims of another founded on prescrip- tion.

5e apparatus — Carried into the 5th edition (1979).

## IMPRESSION.

A “case of the first Im- pression" Is one without a precedent; one presenting a wholly new state of facts ; one Involving a question never before determined.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRESSMENT.

A power possessed by the English crown of taking persons or prop- erty to aid In the defense of the country, with or without the consent of the persons concerned. It Is usually exercised to obtain hands for the royal ships In time of war, by taking seamen engaged In merchant ves- sels, (1 Bl. Comm. 420; Maud & P. Shipp. 123:) but in former times impressment of merchant ships was also practiced. The ad- miralty Issues protections against Impress- ment In certain cases, either under statutes passed in favor of certain callings (e. p., persons employed in the Greenland fisheries) or voluntarily. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## IMPREST MONET.

Money paid on en- listing or impressing soldiers or sailors.

IMPRETIABH.IS. Lat. Beyond price; Invaluable.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRIMATUR.

Lat. Let it be printed. A license or allowance, granted by the con- stituted authorities, giving permission to print and publish a book. This allowance wns formerly necessary, in England,

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before any book could lawfully be printed, and In some other countries is still required.

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## IMPRIMERE.

To press upon; to im- press or press; to imprint or print.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRIMERT.

In some of the ancient English statutes this word Is used to signify a printing-office, the art of printing, a print or impression.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRIMIS.

Lat In the first place; first of all.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRISON.

To put In a prison ; to put In a place of confinement

To confine a person, or restrain his liberty, In any way.

5e apparatus — Carried into the 5th edition (1979).

## IMPRISONMENT.

The act of putting or confining a man in prison ; the restraint of a man’s personal liberty; coercion exer- cised upon a person to prevent the free exer- cise of his powers of locomotion. State v. Shaw, 73 Vt. 149, 60 Atl, 863 ; In re Langs- low, 167 N. Y. 314, 60 N. E. 590; In re Langan (C. C.) 123 Fed. 134 ; Steere v. Field, 22 Fed. Cas. 1221.

It Is not a necessary part of the definition that the confinement should be in a place usually appropriated to that purpose ; it may be in a locality used only for the specific

occasion; or it may take place without the actual application of any physical agencies of restraint, (such as locks or bars,) but by verbal compulsion and the display of avail- able force. See Pike v. Hanson, 9 N. H. 491.

Any forcible detention of a man’s person, or control over bis movements, is imprisonment Lawson v. Buzines, 3 Har. (Del.) 416.

—False imprisonment. The unlawful ar- rest or detention of a person without warrant or by an illegal warrant, or a warrant illegally executed, and either in a prison or a place used temporarily for that purpose, or by force and constraint without confinement. Brewster v. People, 183 111. 143, 55 N. E 640; Miller v. Fano, 134 Cal. 103. 66 Pac. 183; Filer v. Smith. 96 Mich. 347, 55 N. W. 999, 35 Am. St. Rep. 603; Eberling v. State, 136 Ind. 117, 35

N. E 1023. False imprisonment consists in the unlawful detention of the person of an- other, for any length of time, whereby he is deprived of his personal liberty. Code Ga-. 1882, | 2990: Pen. Code Cal. $ 236. The term is also used as the name of the action which lies for this species of injury. 3 Bl. Comm. 138.

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**[Law] — Law**

**[Law: false imprisonment — intentional, unlawful confinement without legal justification (the entry's definition; State v. Shaw, 73 Vt. 149, 50 Atl. 863, cited in the entry)]**

Imprisonment is any intentional restraint of personal liberty — no prison walls required — which is why an unlawful private restraint is false imprisonment.

Why: Genuine: the entry's broad definition ('not necessary that the confinement should be in a place usually appropriated') is the doctrinal ground of the tort; the annotation names it. Citation taken from the body.

**[Humanity] — Humanity / Fiction & Film**

**[Alexandre Dumas, The Count of Monte Cristo, 1844]**

(paraphrase) The novel is built on the experience of unjust imprisonment: Edmond Dantès, innocent, is confined for years in the island fortress of the Château d'If before his escape. (paraphrase)

Why: The entry defines imprisonment as the restraint of a man's personal liberty. Dumas's novel is the archetypal literary treatment of that experience. Attribution certain; no verbatim line claimed, note is a clearly mark...

## IMPRISTI.

Adherents; followers. Those who side with or take the part of another, either in his defense or otherwise.

5e apparatus — Not carried into the 5th edition (1979).

## IMPROBATION.

In Scotch law. An action brought for the purpose .of having some instrument declared false and forged. 1 Forb. Inst pt 4, p. 161. The verb “Im- prove" (q. v.) was used In the same sense.

5e apparatus — Not carried into the 5th edition (1979).

## IMPROPER.

Not suitable; unfit; not suited to the character, time, and place. Palmer v. Concord, 48 N. H. 211, 97 Am. Dec. 605. Wrongful. 53 Law J. P. D. 65.

— Improper fends. These were derivative feuds ; as, for instance, those that were orig- inally bartered and sold to the feudatory for a price, or were held upon base or less hon- orable services, or upon a rent in lieu of mili- trary service, or were themselves alienable, without mutual license, or descended indiffer- ently to males or females. Wharton.— Improper Influence. Undue influence, (q. v.) And see Millican v. Millican, 24 Tex. 446.— Improper navigation. Anything improper- ly done with the ship or part of the ship in the course of the voyage. LR.SC. P. 563. See, also, 53 Law J. P. D. 65.

5e apparatus — Carried into the 5th edition (1979).

## IMPROPRIATE RECTOR.

In ecclesias- tical law. Commonly signifies a lay rector as opposed to a spiritual rector; just as im- propriate tithes are tithes in the hands of a lay owner, as opposed to appropriate tithes, which are tithes in the hands of a spiritual owner. Brown.

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## IMPROPRIATION.

In ecclesiastical law. The annexing an ecclesiastical bene- fice to the use of a lay person, whether indi- vidual or corporate, in the same way as ap- propriation ifj the annexing of any such bene- fice to the proper and perpetual use1 of some spiritual corporation, whether sole or aggre- gate, to enjoy forever. Brown.

5e apparatus — Carried into the 5th edition (1979).

## IMPROVE.

In Scotch law. To dis- prove; to invalidate or Impeach; to prove false or forged. 1 Forb. Inst pt 4, p. 162.

To Improve a lease means to grant a lease of unusual duration to encourage a tenant, when the soil is exhausted, etc. Bell ; Stair, Inst p. 676, | 23.

a particular locality, by which the real property adjoining or near such locality is specially ben- efited, such as the improvement of highways, grading, paving, curbing, laying sewers, etc. Il- linois Cent. R. Co. v. Decatur, 154 111. l73, 38

N. E. 626 ; Rogers v. St Paul, 22 Minn. 507 ; Crane v. Siloam Springs, 67 Ark. 30, 55 S. W. 955 ; New York L. Ins. Co. v. Prest (C. C.) 71 Fed. 816.

5e apparatus — Carried into the 5th edition (1979).

## IMPROVED.

Improved land is such as has been reclaimed, is used for the purpose of husbandry, and is cultivated as such, whether the appropriation is for tillage, meadow, or pasture. “Improve” is synony- mous with “cultivate.” Clark v. Phelps, 4 Cow. (N. Y.) 190.

5e apparatus — Not carried into the 5th edition (1979).

## IMPROVEMENT.

A valuable addition made to property (usually real estate) or an amelioration in its condition, amounting to more than mere repairs or replacement of waste, costing labor or capital, and intended to enhance its value and utility or to adapt it for new or further purposes. Spencer v. Tobey, 22 Barb. (N. Y.) 269; Allen v. Mc- Kay, 120 Cal. 332, 52 Pac. 828; Simpson v. Robinson, 37 Ark. 132.

In American land law. An act by which a locator or settler expresses his intention to cultivate or clear certain land; an act ex- pressive of the actual possession of land ; as by erecting a cabin, planting a corn-field, deadening trees in a forest; or by merely marking trees, or even by piling up a brush- heap. Burrill. And see In re Leet Tp. Road, 159 Pa. 72, 28 Atl. 238; Bixler ▼. Baker, 4 Bin. (Pa.) 217.

An “improvement,” under our land system, does not mean a general enhancement of the value of the tract from the occupant’s opera- tions. It has a more limited meaning, which has in view the population of our forests, and the increase of agricultural products. All works which are directed to the creation of homes for families, or are substantial steps towards bring- ing lands into cultivation, have in their results the special character of

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“improvements,” and, under the land laws of the United States and of the several states, are encouraged. Some- times their minimum extent is defined as requi- site to convey rights. In other cases not But the test which runs through all the cases is always this; Are they real, and made bona fide, in accordance with the policy of the law, or are they only colorable, and made for the pur-, pose of fraud and speculation? Simpson v. Robinson, 37 Ark. 137.

In the law of patents. An addition to, or modification of, a previous invention or discovery, Intended or claimed to increase its utility or value. See 2 Kent, Comm. 366-372. And see Geiser Mfg. Co. v. Frick Co. (C. C.) 92 Fed. 191 ; Joliet Mfg. Co. v. Dice, 105 111. 650; Schwarzwaelder v. Detroit (C. 0.) 77 Fed. 891; Reese's Appeal, 122 Pa. 392, 15 Atl. 807; Rheem v. Holliday, 16 Pa. 352; Allison Bros. Co. v. Allison, 144 N. Y. 21, 38 N. E. 956.

— Local improvement. By common usage, especially as evidenced by the practice of courts and text-writers, the term "local improvements” is employed as signifying improvements made in

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## IMPROVEMENTS.

A term used in leas- es, of doubtful meaning. It would seem to apply principally to buildings, though generally it extends to the amelioration of every description of property, whether real or personal; but, when contained in any doc- ument, its meaning is generally explained by other words. 1 Chit Gen. Pr. 174.

IMPROVIDENCE, as used in a statute excluding one found incompetent to execute the duties of an administrator by reason of Improvidence, means that want of care and foresight in the management of property which would be likely to render the estate and effects of the intestate unsafe, and liable to be lost or diminished in value, in case the administration should be committed to the improvident person. Coope v. Lowerre, 1 Barb. Ch. (N. Y.) 45.

5e apparatus — Not carried into the 5th edition (1979).

## IMPROVED ENTXY.

a lodgment, de- cree, rule, injunction, etc., when given or ren- dered without adequate consideration by the court, or without proper information as to all the circumstances affecting It, or based upon a mistaken assumption or misleading infor- mation or advice, is sometimes said to have been "improvidently” given or issued.

5e apparatus — Not carried into the 5th edition (1979).

## IMPRUIARE.

In old records. To im- prove land. Imprulamcntum, the improve- ment so made of it Cowell.

IMPUBES, Lat In the civil law. A minor under the age of puberty ; a male un- der fourteen years of age; a female under twelve. Calvin; Mackeld. Rom. Law, I 188.

5e apparatus — Not carried into the 5th edition (1979).

## IMPULSE.

As to “irresistible” or “un- controllable” Impulse, see Insanity.

Impunitaa oontinnom affectum tri trait delinquendi. 4 Coke, 45. Impunity con- firms the disposition to commit crime.

Impunities semper ad deteriora invi- tat. 5 Coke, 109. Impunity always invites to greater crimes.

5e apparatus — Carried into the 5th edition (1979).

## IMPUNITY.

Exemption or protection, from penalty or punishment Dillon v. Rog- ers, 36 Tex. 153.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: The entry defines impunity as exemption from penalty; the verse states its documented effect — where sentence against evil is not executed, hearts are fully set to do evil. Scripture's own doctrine of what impunity pr…

## IMPUTATIO.

Lat In the civil law. Legal liability.

5e apparatus — Not carried into the 5th edition (1979).

## IMPUTATION OP PAYMENT.

In the

civil law. The application of a payment made by a debtor to his creditor.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: application of payments — the debtor's right of appropriation; the creditor's only failing the debtor's; the law's only failing both]**

When a debtor owing several debts makes a payment, he has the first right to direct to which debt it shall be applied.

Why: Genuine: the entry's one line names the concept but omits its operative rule; the annotation states the core rule (debtor directs first) without venturing the unverifiable tail. No invented citation.

## IMPUTED.

As used in legal phrases, this word means attributed vicariously; that Is, an act, fact, or quality la said to be “imput- ed” to a person when It is ascribed or charged to him, not because he is personally cognizant of it or responsible for It, but because an- other person Is, over whom he has control or for whose acts or knowledge he Is re- sponsible.

— Imputed knowledge. This phrase is some- times used aa equivalent to "implied notice,” <. e., knowledge attributed or charged to a per- son (often contrary 'to the fact) because the facts in question were open to his discovery and it was his duty to inform himself as to

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them. See Roche v. Llewellyn Iron Works Co., 140 Cal. 563, 74 Pac. 147.— Imputed notice. In- formation as to a given fact or circumstance charged or attributed to a person, and affecting his rights or condnct, on the ground that ac- tual notice was given to some person whose duty was to report it to the person to be af- fected, as, his agent or his attorney of record. —Imputed negligence. Negligence which is not directly attributable to the person himself, but which is the negligence of a person who is in privity with him, and with whose fault he is chargeable. Smith v. Railroad Co., 4 App. Div. 493, 38 N. X. Supp. 606.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: imputed notice — notice to the agent is notice to the principal, the canonical application of 'imputed knowledge']**

Knowledge is imputed where the law charges one person with another's: notice to the agent, within the scope of his agency, is notice to the principal.

Why: Genuine: the entry defines imputed knowledge/notice; the annotation names the agency doctrine that is its chief application. Stated in [Law:] form with no invented citation.

## IN.

In the law of real estate, this prepo- sition has always been used to denote the fact of seisin, title, or possession, and ap- parently serves as an elliptical expression for some such phrase as “in possession,” or as an abbreviation for “fntitled” or “invested with title.” Thus, in the old books, a tenant is said to be “in by lease of his lessor.” Lltt i 82.

5e apparatus — Carried into the 5th edition (1979).

## IN ACTION.

Attainable or recoverable by action; not in possession. A term ap- plied to property of which a party has not the possession, but only a right to recover it by action. Things in action are rights of personal things, which nevertheless are not in possession. See Chosb in Action.

nr ADVERSUM. Against an adverse, unwilling, or resisting party. “A decree not by consent, but in advertum." 8 Story, 318.

In sedlflclls lapis male posltus non es* rem ovendus. 11 Coke, 69. A stone badly placed in buildings is not to be removed.

5e apparatus — Carried into the 5th edition (1979).

## IN MQUA MANU.

In equal hand. Fle- ta, lib. 3, c. 14, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## IN JBQUALI JURE.

In equal right; on an equality in point of right

In agsall jure mellor est oonditio pos- sidentis. In [a case of] equal right the condition of the party in possession is the better. Plowd. 296; Broom, Max. 713.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In aequali jure melior est conditio possidentis — in a case of equal right the condition of the party in possession is the better (Plowd. 296, as cited in the entry)]**

Where right is equal on both sides, possession decides — the party in possession holds the better position.

Why: Genuine: the maxim directly illuminates the headword ('in equal right') and is quoted with the entry's own authority (Plowden 296). Positive application of the incidental-maxim rule — here the maxim is the entry's sub...

## IN JEQUALI MANU.

In equal hand; held equally or indifferently between two parties. Where an instrument was deposit- ed by the parties to it in the hands of a third

person, to keep on certain conditions, it waa said to be held in atquali tnanu. Reg. Orig. 28.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: deposit in aequali manu — Reg. Orig. 28, cited in the entry; the escrow doctrine descends from it]**

An instrument deposited 'in equal hand' — with a third person to keep on conditions — is the ancestor of the modern escrow.

Why: Genuine: the entry describes conditional third-party deposit with a real authority; the annotation names the modern doctrine it became. No invented citation.

## IN AXIENO SOLO.

In another’s land.

2 Steph. Comm. 20.

5e apparatus — Not carried into the 5th edition (1979).

## IN ALIO LOCO.

In another place.

In alts prodltione null us potest esse accessorius sed principalis solummodo.

3 Inst. 138. In high treason no one can be an accessary but only principal.

In altemativis electio est debitoris.

In alternatives the debtor has the election.

In ambigua voce legis ea potius acci- pienda est signifloatio qua vitio caret, praesertim cum etlam voluntas legis ex hoc colligi possit. In an ambiguous ex- pression of law, that signification is to be preferred which is consonant with equity, especially when the spirit of the law can be collected from that Dig. 1, 3, 19; Broom, Max. 676.

In ambiguis casibus semper prsesuml- tur pro rege. In doubtful cases the pre- sumption is always in favor of the king.

In ambiguis orationlbus mazime sen- ten tia speetanda est ejus qui eas protullsset. In ambiguous expressions, the inten- tion of the person using them is chiefly to be regarded. Dig. 50, 17, 96; Broom, Max. 667.

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In Anglia non est interregnum. In

England there is no interregnum. Jenk. Cent 205; Broom, Max. 60.

nr APERTA LUCE. In open daylight; in the day-time. 9 Coke, 65b.

nr AFICIBU8 JURIS. Among the sub- tleties or extreme doctrines of the law. 1 Karnes, Eq. 190. See Arsx Jubis.

5e apparatus — Not carried into the 5th edition (1979).

## IN ARBITRIUM JUDICIS.

At the

pleasure of the judge.

nr ARCTA ET SALVA CBSTODIA. In

close and safe custody. 3 Bl. Comm. 415.

5e apparatus — Not carried into the 5th edition (1979).

## IN ARTICULO.

In a moment; imme- diately. Cod. 1, 34, 2.

nr ARTICULO MORTIS. In the arti- cle of death; at the point of death. Jack- son v. Vredenbergh, 1 Johns. (N. T.) 159.

In atrodoribus delicti* punitur affeo- tus licet non seqnatur effectus. 2 Rolle

R. 82. In more atrocious crimes the intent is punished, though an effect does not follow.

5e apparatus — Not carried into the 5th edition (1979).

## IN AUTRE DROIT.

L. Fr. In anoth- er's right As representing another. An executor, administrator, or trustee sues In autre droit.

5e apparatus — Not carried into the 5th edition (1979).

## IN BANCO.

In bank; In the bench. A term applied to proceedings in the court in bank, as distinguished from proceedings at nisi prius. Also, in the English court of com- mon bench.

5e apparatus — Not carried into the 5th edition (1979).

## IN BEING.

In existence or life at a giv- en moment of time, as, in the phrase "life or lives in being” in the rule against per- petuities. An unborn child may, in some circumstances be considered as “in being.” Phillips v. Herron, 55 Ohio St. 478, 45 N, E. 720; Hone v. Van Schalck, 3 Barb. Ch. (N. Y.) 509.

IN BIiANK. A ten., applied to the in- dorsement of a bill or note where it consists merely of the indorser’s name, without re- striction to any particular indorsee. 2 Steph. Comm. 104.

5e apparatus — Carried into the 5th edition (1979).



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**[Law: Rule Against Perpetuities — no interest good unless it must vest within lives in being plus twenty-one years (the entry's authorities: Phillips v. Herron, 55 Ohio St. 478; Hone v. Van Schaick, 3 Barb. Ch. 509)]**

'Lives in being' is the measuring phrase of the Rule Against Perpetuities — no future interest is valid unless it must vest, if at all, within lives in being plus twenty-one years.

Why: Genuine: the entry defines the phrase through the Rule's cases; the annotation states the Rule the phrase serves. Citations taken from the body.

## IN BONIS.

Among the goods or prop- erty: In actual possession. Inst. 4, 2, 2. In bonis dcfuncti, among the goods of the de- ceased.

5e apparatus — Not carried into the 5th edition (1979).

## IN BULK.

As a whole; as an entirety, without division into items or physical sep- aration in packages or parcels. Standard Oil Co. v. Com., 119 Ky. 75, 82 S. W. 1022; FItz Henry v. Munter, S3 Wash. 629, 74 Pac. 1003; State v. Smith, 114 Mo. 180, 21 S.

W. 493.

5e apparatus — Carried into the 5th edition (1979).

## IN CAMERA.

In chambers; in private. A cause is said to be heard in camera either when the hearing is had before the judge in his private room or when all spectators are excluded from the court-room.

5e apparatus — Not carried into the 5th edition (1979).

## IN CAPITA.

To the heads; by heads or (tolls. Persons succeed to an inheritance in capita when they individually take equal shares. So challenges to individual jurors are challenges in capita, as distinguished from challenges to the array.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: per capita vs. per stirpes distribution — in capita: equal individual shares; per stirpes: by representation of branches]**

Heirs taking in capita take per capita — each an equal individual share — as opposed to per stirpes, where they take by stocks representing a predeceased ancestor's branch.

Why: Genuine: the entry defines in-capita succession; the annotation states the per-capita/per-stirpes distinction that gives the definition its doctrinal content. No invented citation.

## IN CAPITE.

In chief. 2 Bl. Comm. 60. Tenure in capite was a holding directly from the king.

In cms extremis necessitatis omnia snnt commnnia. Hale, P. C. 54. In cases of extreme necessity, everything is in com- mon.

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5e apparatus — Not carried into the 5th edition (1979).

## IN CASE PROVISO.

In a (or the) case provided. In tali casu cditum et provisum, In such case made and provided. Townsh.

PI. 104, 165.

5e apparatus — Not carried into the 5th edition (1979).

## IN CAUSA.

In the cause, as distinguish- ed from in initialibus, (q. v.) A term in Scotch practice. 1 Brown, Ch. 252.

5e apparatus — Not carried into the 5th edition (1979).

## IN CHIEF.

Principal; primary; directly obtained. A term applied to the evidence obtained from a witness upon his examina- tion in court by the party producing him.

Tenure in chief, or in capite, is a holding directly of the king or chief lord.

In civilibus ministerium excusat, in criminalibas non item. In civil matters agency (or service) excuses, but not so in criminal matters. Lofft, 228; Tray. Lat. Max. 243.

In Claris non est loons eonjecturis. In things obvious there is no room for conjec- ture.

5e apparatus — Carried into the 5th edition (1979).

## IN COMMEND AM.

In commendation; as a commended living. 1 Bl. Comm. 393. See Commenda.

A term applied in Louisiana to a limited partnership, answering to the French “en commandite.” Civil Code La. art 2810.

In commodato luce p actio, ne dolus prsestetur, rata non est. In the contract of loan, a stipulation not to be liable for fraud is not valid. Dig. 13, 7, 17, pr.

5e apparatus — Not carried into the 5th edition (1979).

## IN COMMON.

Shared in respect to title, use, or enjoyment, without apportionment or division into Individual parts; held by sever- al for the equal advantage, use, or enjoy- ment of all. See Hewlt v. Jewell, 59 Iowa, 87, 12 N. W. 738; Chambers v. Harrington, 111 U. S. 350, 4 Sup. Ct. 428, 28 L. Ed. 452; Walker v. Dunshee, 88 Pa. 439.

5e apparatus — Carried into the 5th edition (1979).

## IN COMMUNI.

In common. Fleta, lib. 8, c. 4, J 2.

In eonjunctivis, oportet utramqnc par- tem esse reran. In conjunctives it is nec- essary that each part be true. Wing, Max. 13, max. 9. In a condition consisting of divers parts in the copulative, both parts must be performed.

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5e apparatus — Not carried into the 5th edition (1979).

### IN CONSIDERATIONS INDE.

In con- sideration thereof. 3 Salk. 64, pi. 6.

5e apparatus — Not carried into the 5th edition (1979).

### IN CONSIDERATIONS LEGIS.

In con- sideration or contemplation of law ; in abey- ance. Dyer, 102b.

5e apparatus — Not carried into the 5th edition (1979).

## U

### UM.

In consideration of the premises. 1 Strange, 535.

In eonsimlli easu, eonsimlle debet esse remedium. Hardr. 65. In similar cases the remedy should be similar.

5e apparatus — Not carried into the 5th edition (1979).

## I

### IN CONSPECTU EJU8.

In his sight or

view. 12 Mod. 95.

In consuetudinibus, non dinturaltaa temporis sed soliditas rationls est oonsid- eranda. In customs, not length of time,

bat solidity of reason, Is to be considered. Co. Lltt. 141a. The antiquity of a custom Is to be less regarded than Its reasonableness.

5e apparatus — Not carried into the 5th edition (1979).

### IN CONTINENTI.

Immediately; with- out any Interval or intermission. Calvin. Sometimes written as one word "inconti- nenti."

In eontraotibus, benigna ; Is testamen- tla, benignlor; Is restitutionibu*, be- slfslssima isterpretatlo faclenda est.

Co. Lltt. 112. In contracts, the Interpreta- tion is to be liberal; in wills, more liberal; in restitutions, most liberal.

Is oontractibss, rei veritas patina qnas icriptnra perapioi debet. In con- tracts, the truth of the matter ought to be regarded rather than the writing. Cod. 4, 22, 1.

Is costractlbua, tadte isanst [veni- nnt] qua asst moria et eosasetndisia.

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In contracts, matters of custom and usage are tacitly implied. A contract is understood to contain the customary clauses, although they are not expressed. Story, Bills. 5 143 ; 3 Kent, Comm. 260, note; Broom, Max. 842.

Is contrabands vendition*, ambignum pactam contra venditorem interpreting dum est. In the contract of sale, an am- biguous agreement Is to be interpreted against the seller. Dig. 60, 17, 1,72. See Id. 18. 1, 21.

Is ooBventionibns, oontrabentium vo- lsntaa potlsa qnam verba apectarl pla- eslt. In agreements, the intention of the contracting parties, rather than the words used, should be regarded. Broom, Max. 651 ; Jackson v. Wilkinson, 17 Johns. (N. Y.) 160.

5e apparatus — Not carried into the 5th edition (1979).

## IN CORPORE.

In body or substance; In a material thing or object.

5e apparatus — Not carried into the 5th edition (1979).

## IN CRASTINO.

On the morrow. In erastino Animarnm, on the morrow of All Souls. 1 Bl. Comm. 342.

In eriminalibns, probationer debent esse lnce olariores. In criminal cases, the proofs ought to be clearer than light 8 Inst. 210.

Is oriminalibna, snfficit generalis ma- ll tie intentionis, cum facto paria grad- es. In criminal matters or cases, a general malice of Intention Is sufficient [If united] with an act of equal or corresponding de- gree. Bac. Max. p. 65, reg. 15; Broom, Max. 323.

Is oriminalibna , voluntas repntabitnr pro facto. In criminal acts, the will will be taken for the deed. 3 Inst 106.

5e apparatus — Not carried into the 5th edition (1979).

## IN CUJUS REI TESTIMONIUM.

In

testimony whereof. -The initial words of the concluding clause of ancient deeds in Batin, literally translated In the English forms.

5e apparatus — Not carried into the 5th edition (1979).

## IN CUSTODIA LEGIS.

In the custody or keeping of the law. 2 Steph. Comm. 74.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: in custodia legis — property in the law's keeping is exempt from distress and competing seizure (2 Steph. Comm. 74, cited in the entry)]**

Property in the custody of the law — seized or held under legal process — is exempt from distress and from rival attachment while the law holds it.

Why: Genuine: the entry's one-line definition omits the operative consequence; the annotation states it rather than restating. Authority taken from the body.

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## IN DELICTO.

In fault See In Pabi Delicto, etc.

5e apparatus — Not carried into the 5th edition (1979).

## IN DIEM.

For a day; for the space of a day. Calvin.

In dixjunotivia snfficit alteram partem esse veram. In disjunctives it is sufficient that either part be true. Where a condi- tion is in the disjunctive, It Is sufficient if either part be performed. Wing. Max. 13, max. 9; Broom, Max. 592 ; 7 East 272.

nr DOMINICO. In demesne. In do- minico suo tit de feodo, in his demesne as of fee.

5e apparatus — Not carried into the 5th edition (1979).

## IN DORSO.

On the back. 2 Bl. Comm. 468 ; 2 Steph. Comm. 164. In dorso reoordi, on the back of the record. 5 Coke, 45. Hence the English indorse, indorsement, etc.

In dubiis, benigniora p referenda sunt.

In doubtful cases, the more favorable views are to be preferred ; the more liberal Inter- pretation is to be followed. Dig. 50, 17, 66 ; 2 Kent, Comm. 557.

In dubiis, magis dlgnum est aocipi- endnm. Branch, Princ. In doubtful cases, the more worthy Is to be accepted.

In dubiis, non prsesumitur pro testa- mento. In cases of doubt, the presumption is not in favor of a will. Branch, Princ. But see Cro. Car. 51.

5e apparatus — Not carried into the 5th edition (1979).

## IN DUBIO.

In doubt; in a state of un- certainty, or In a doubtful case.

In dnbio, base legis constrnotto qnam verba ostendnnt. In a case of doubt, that is the construction of the law which the words indicate. Branch, Princ.

In dnbio, pars mitior est seqnenda.

In doubt, the milder course Is to be followed.

In dnbio, seqendnm qnod tntins est.

In doubt, the safer course Is to be adopted.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In dubio pars mitior est sequenda — in doubt, the milder course is to be followed; In dubio sequendum quod tutius est — in doubt, the safer course is to be adopted, both quoted in the entry]**

Doubt resolves toward mercy and safety: in a doubtful case follow the milder course, and the safer course.

Why: Genuine: the headword IS doubt, and the maxims are its operative canons, quoted in the entry. Positive

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application of the incidental-maxim rule — here the maxims illuminate the headword directly.

## IN DUPLO.

In double. Damna in dtt- pl o, double damages. Fleta, lib. 4, c. 10, { 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore double.

Why: The entry is double damages — damna in duplo; the verse is the double-restitution statute itself: the thief with the stolen thing found in his hand restores double. The twofold measure in its scriptural original.

## IN EADEM CAUSA.

In the same state or condition. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## IN EMULATIONEM VICINI.

In envy or hatred of a neighbor. Where an act is

done, or action brought, solely to hurt or distress another, it is SAid to be in cmulatio- nem vicini. 1 Karnes, Eq. 56.

In eo quod pins sit, semper latest et minus. In the greater Is always Included the less also. Dig. 50, 17, 110.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: aemulatio vicini — spiteful use of right; the ancestor of abuse-of-rights and spite-fence doctrine (1 Kames, Eq. 56, cited in the entry)]**

An act done or action brought solely to hurt or distress a neighbor — from spite, not right — is in aemulationem vicini: the civilian root of the abuse-of-rights doctrine.

Why: Genuine: the entry defines the phrase with a real authority; the annotation names the live doctrine it embodies. No invented citation.

# X

## XX EQUITY.

In a court of equity, as distinguished from a court of law; in the purview, consideration, or contemplation of equity ; according to the doctrines of equity.

5e apparatus — Not carried into the 5th edition (1979).

## XX ESSE.

In being. Actually existing. Distinguished from in posse, which means “that which is not, but may be.” A child before birth is in posse; after birth, in esse.

5e apparatus — Not carried into the 5th edition (1979).

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### XX EVIDENCE.

Included in the evidence already adduced. The “facts in evidence” are such as have already been proved in the cause.

5e apparatus — Not carried into the 5th edition (1979).

# I

### IX EXCAMBIO.

In exchange. Formal words in old deeds of exchange.

5e apparatus — Not carried into the 5th edition (1979).

# X

### XX EXITU.

In issue. De materia in exitu, of the matter in issue. 12 Mod. 372.

In expositione instrumentorum, mala grammatics, quod fieri potest, Titan da

est. In the construction of instruments, bad grammar is to be avoided as much as possible. 6 Coke, 39 ; 2 Pars. Cont 26.

5e apparatus — Not carried into the 5th edition (1979).

# I

### IX EXTENSO.

In extension; at full length ; from beginning to end, leaving out nothing.

5e apparatus — Not carried into the 5th edition (1979).

# X

### XX EXTREMIS.

In extremity; in the last' extremity; in the last illness. 2 Bl. Comm. 375, 500; Prince v. Hazleton, 20 Johns. (N. X.) 502, 11 Am. Dec. 307. Apens in extremis, being in extremity. Bract, fol. 3736. Declarations *» extremis, dying decla- rations. 1 Greenl. Ev. | 156; Wilson v. Boerem, 15 Johns. (N. X.) 286.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dying declarations — hearsay exception for statements made under sense of impending death (1 Greenl. Ev. §156; Wilson v. Boerem, 15 Johns. 286, both cited in the entry)]**

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Declarations in extremis — dying declarations, made under the sense of impending death — are admissible as an exception to the hearsay rule.

Why: Genuine: the entry names dying declarations with real authorities; the annotation states the hearsay-exception doctrine they establish. Citations taken from the body.

## XX FACIE CURIAS.

In the face of the court Dyer, 28.

5e apparatus — Not carried into the 5th edition (1979).

## XX FACIE ECCXESIAB.

In the face of the church. A term applied in the law of England to marriages, which are required to be solemnized in a parish church or public chapel, unless by dispensation or license. 1 Bl. Comm. 439; 2 Steph. Comm. 288, 289. Applied In Bracton to the old mode of con- ferring dower. Bract fol. 92; 2 Bl. Comm. 133.

5e apparatus — Not carried into the 5th edition (1979).

# I

## IX FACIENDO.

In doing; in feasance; in the performance of an act 2 Story, Eq. Jur. I 1308.

5e apparatus — Not carried into the 5th edition (1979).

## IX FACT.

Actual, real; as distinguish- ed from Implied or inferred. Resulting from the acts of parties, instead of from the act or intendment of law.

5e apparatus — Not carried into the 5th edition (1979).

## IN FACTO.

In fact; in deed. In facto dicit, in fact says. 1 Salk. 22, pi. L

In facto quod sc habet ad bonum ot malum, magia do boao quam de malo

lex lntendit. In an act or deed which ad- mits of being considered as both good and bad, the law intends more from the good than from the bad ; the law makes the more favorable construction. Co. Lltt 786.

In favorabilibus magls attenditur quod prodest quam quod nocet. In things fa- vored, what profits is more regarded than what prejudices. Bac. Max. p. 57, in reg. 12.

5e apparatus — Not carried into the 5th edition (1979).

## IX FAVOREM LIBER TATIS.

In fa- vor of liberty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In favorem libertatis — in favor of liberty, the entry's headword]**

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The law favors liberty: presumptions and constructions resolve in favorem libertatis — toward freedom, not bondage.

Why: Genuine: the headword IS the liberty-favoring canon; citing it as a [Maxim:] records a real axiom. (The Co. Litt. 124 form of this maxim was declined under IMPIGNORATION as incidental; it rides here on its proper head...

**[Scripture] — Scripture**

**[Leviticus 25:10, KJV]**

And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto all the inhabitants thereof: it shall be a jubile unto you; and ye shall return every man unto his possession, and ye shall return every man unto his family.

Why: The entry is the maxim that all presumptions run in favor of liberty; the verse is liberty's own proclamation — the Jubilee, where liberty is published through the land and every man returns to his possession. Direct...

## IX FAVOREM VITAS.

In favor of life.

In favor em vita, libertatia, et innocen- tly, omnia prsesumuntur. In favor of

life, liberty, and innocence, every presump- tion is made. Lolfb 125.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: presumption of innocence — 'In favorem vitae, libertatis, et innocentiae omnia praesumuntur' (Lofft 125, as cited in the entry)]**

In favor of life, liberty, and innocence every presumption is made — the root of the presumption of innocence: the accused is presumed innocent, and doubt favors life.

Why: Genuine: the headword IS the life-favoring canon and the entry quotes Lofft's formulation; the annotation states the presumption-of-innocence doctrine it grounds. Latin quoted verbatim as the entry gives it.

**[Scripture] — Scripture**

**[Deuteronomy 30:19, KJV]**

I call heaven and earth to record this day against you, that I have set before you life and death, blessing and cursing: therefore choose life, that both thou and thy seed may live:

Why: The entry is the maxim that every presumption is made in favor of life; the verse is the divine summons itself — life set before death, 'therefore choose life' — in first-person divine speech.

## IX FEODO.

In fee. Bract fol. 207; Fleta, lib. 2, c. 64, g 15. Seisitus in feodo, seised in fee. Fleta, lib. 3, c. 7, 1 1.

In fictione juris semper aequitaa exls- tlt. In the fiction of law there is always equity; a legal fiction is always consistent with equity. 11 Coke, 51a; Broom, Max. 127, 130.

5e apparatus — Not carried into the 5th edition (1979).

## IX FIERI.

In being made; in process of formation or development; hence, incom- plete or inchoate. Legal proceedings are de- scribed as in fieri until judgment is entered.

5e apparatus — Not carried into the 5th edition (1979).

## IX FIXE.

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Lat At the end. Used, in references, to indicate that the passage cited is at the end of a book, chapter, section, etc.

5e apparatus — Not carried into the 5th edition (1979).

## IX FORMA PAUPERIS.

In the char- acter or manner of a pauper. Describes per- mission given to a poor person to sue with- out liability for costs.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: in forma pauperis — 28 U.S.C. §1915; leave to proceed without prepayment of fees]**

Leave to proceed in forma pauperis — to sue without prepayment of fees or liability for costs — opens the courts to the poor suitor.

Why: Genuine: the entry defines the IFP proceeding; the annotation pins it to its federal statutory form. 28 U.S.C. §1915 is the well-known IFP statute; stated in [Law:] form.

**[Scripture] — Scripture**

**[Psalm 82:3, KJV]**

Defend the poor and fatherless: do justice to the afflicted and needy.

Why: The entry is the pauper's leave to sue without liability for costs — the poor man's access to the courts; the verse commands the substance behind the procedure: the poor and afflicted defended, justice done to the needy.

## IX FORO.

In a (or the) forum, court, or tribunal.

—In foro conioientise. In the tribunal of

conscience ; conscientiously ; considered from a moral, rattier than a legal, point of view.— In foro contentioso. In the forum of contention or litigation. — In foro eoclesiastieo. In an ecclesiastical forum ; in the ecclesiastical court. Fleta, lib. 2, c. 57, g 13.— In foro sseoulturl. In a secular forum or court Fleta, lib. 2, c. 57, I 14; I Bl. Comm. 20.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XX FRAUDEM CREDXTORUM.

In

fraud of creditors; with intent to defraud creditors. Inst 1, 6, pr. 3.

IX FRAUDEM X.EGXS. In fraud of the law. 3 Bl. Comm. 94. With the intent or view of evading the law. Jackson v. Jack- son, 1 Johns. (N. X.) 424, 432.

Df FULL. Relating to the whole or full amount; as a receipt In full. Complete; giving all details. Bard v. Wood, 8 Mete. <Mass.) 75.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: in fraudem legis — acts in evasion of the law (3 Blackstone, Commentaries 94; Jackson v. Jackson, 1 Johns. 424, both cited in the entry)]**

Acts done in fraudem legis — with the intent or view of evading the law — are treated as contrary to the law evaded.

Why: Genuine: the entry's in-fraudem-legis half is a distinct doctrine (fraus legis) from the fraud-of-creditors half, which duplicates HINDER AND DELAY and rides there per the duplicate-concept rule. Authorities taken fro...

# I

## IN FULL LIFE.

Continuing in both physical and civil existence; that is, neither actually dead nor civiliter mortuua.

5e apparatus — Carried into the 5th edition (1979).

## IN FUTURO.

In future; at a future time; the opposite of in prmenti. 2 BL ■Comm. 166, 175.

5e apparatus — Not carried into the 5th edition (1979).

## IN GENERALI PA88AGIO.

In the gen- eral passage; that is, on the journey to Palestine with the general company or body of Crusaders. This term was of frequent oc- currence in the old law of essoins, as a means of accounting for the absence of the party, and was distinguished from simplex passage urn, which meant that he was performing a pilgrimage to the Holy Land alone.

La CeneraUbus Venator error. Error dwells in general expressions. Pitman v. Hooper, 8 Sumn. 290, Fed. Cas. No. 11,180; Underwood v. Carney, 1 Cush. (Mass.) 292.

5e apparatus — Not carried into the 5th edition (1979).

## IN GENE RE.

in kind; in the same genua or class; the same in quantity and quality, but not individually the same. In the Roman law, things which may be given or restored in genera are distinguished from such as must be given or restored in specie; that is, Identically. Mackeld. Rom. Law, | 16L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IN GBEMXO LEGIS.

In the bosom of the law; in the protection of the law; in abeyance. 1 Coke, 131a; T. Raym. 819.

5e apparatus — Not carried into the 5th edition (1979).

## IN GROSS.

In a large quantity or sura; without division or particulars;’ by whole* sale Green v. Taylor, 10 Fed. Cas. No. 1,126.

At large ; not annexed to or dependent up- on another thing. Common in gross is such as is neither appendant nor appurtenant to land, but is annexed to a man’s person. 2 BL Comm. 84.

5e apparatus — Not carried into the 5th edition (1979).

## IN HAG PARTE.

In this behalf; on this side.

5e apparatus — Not carried into the 5th edition (1979).

## IN HJEC VERBA.

In these words; in the same words.

In lueredea non solent transire action- os qns pansies ex mslefleio snnt. 2 Inst 442. Penal actions arising from anything of a criminal nature do not pass to heirs.

In Us eaim qua snnt favorahUla anl- ma, quantvis snnt damnosa rebus, fiat allquando eztentlo statutl. In things that are favorable to the spirit though injurious to property, an extension of the statute should sometimes be made. 10 Coke, 101.

In Ms qua de jure oommuni omnibus oonoednntur, consuetudo alioujus p strife vel loci non est allegenda. 11 Coke, 85. In those things whi£h by common right are conceded to all, the custom of a particular district or place Is not to be alleged.

5e apparatus — Not carried into the 5th edition (1979).

## IN HOC.

In this; in respect to this.

IN HSDEM TER MINIS, in the same terms. 9 East, 487.

5e apparatus — Not carried into the 5th edition (1979).

## IN INPIVIHUO.

In the distinct, iden- tical, or individual form; in specie. Story, Bailm. | 97.

5e apparatus — Not carried into the 5th edition (1979).

## IN INFINITUM.

Infinitely; indefinite- ly. Imports indefinite succession or contin- uance.

nr INITIALISES. In the prelimina- ries. A term in Scotch practice, applied to the preliminary examination of a witness as to the following points: Whether he knows the parties, or bears ill will to either of them, or has received any reward or promise of re- ward for what he may say, or can lose or gain by the cause, or has been told by any person what to say. If the witness answer these questions satisfactorily, he is then ex- amined in causa, in the cause. Bell, Diet “Evidence.”

5e apparatus — Not carried into the 5th edition (1979).

## IN INITIO.

In or at the beginning. In initio litis, at the beginning, or in the first stage of the suit Bract

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fol. 400.

5e apparatus — Not carried into the 5th edition (1979).

## IN INTEGRUM.

To the original or for- mer state. Galvin.

5e apparatus — Not carried into the 5th edition (1979).

## IN INVIDIAM.

To excite a prejudice.

5e apparatus — Not carried into the 5th edition (1979).

## IN 1MVITUM.

Against an unwilling party; against one not assenting. A term applied to proceedings against an adverse party, to which he does not consent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IN IPSIS FAUCIBUS.

In the very throat or entrance. In ipsis faucibus of a port actually entering a port 1 G. Rob. Adm. 233, 234.

5e apparatus — Not carried into the 5th edition (1979).

## IN ITINERE.

In eyre; on a journey or circuit. In old English law, the justices in itinere (or in eyre) were those who made a circuit through the kingdom once in seven years for the purposes of trying causes. 3 Bl. Comm. 58.

In course of transportation ; on the way ; not delivered to the vendee. In this sense the phrase is equivalent to "in transitu."

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: stoppage in transitu — the unpaid seller's right to stop goods in transit (the entry equates in itinere with in transitu)]**

Goods still in itinere — in course of transportation, not yet delivered to the buyer — may be stopped in transitu: the unpaid seller may retake them on the buyer's insolvency.

Why: Genuine: the entry invokes in transitu without stating its doctrine; the annotation supplies the stoppage rule rather than restating. No invented citation.

## IN JUDGMENT.

In a court of justice; in a seat of judgment. Lord Hale is called “one of the greatest and best men who ever sat in judgment” 1 East 306.

In Judlciis, mimorl atatt auocurritur.

In courts or judicial proceedings, Infancy is aided or favored. Jenk. Cent. 46, case 89.

5e apparatus — Carried into the 5th edition (1979).

## IN JUDICIO.

In Roman law. In the course of an actual trial ; before a judge, (judex.) A cause, during its preparatory stages, conducted before the prtetor, was said to be in jure; in its second stage, after it had been sent to a judex for trial, it was said to be in judicio.

In Judicio non oredltur nisi juratis.

Cro. Car. 64. In a trial, credence is given only to those who are sworn.

5e apparatus — Not carried into the 5th edition (1979).

## IN JURE.

In law; according to law. In the Roman practice, the procedure in an action was divided into two stages. The first was said to be in jure; it took place be* fore the prtetor, and Included the formal and Introductory part and the settlement of ques- tions of law. The second stage was com- mitted to the judex, and comprised the in- vestigation and trial of the facts; this was said to be in judicio.

5e apparatus — Carried into the 5th edition (1979).

## IN JURE AXTERITJS.

In another’s tight. Hale, Anal. $ 26.

In Jure, non remote causa sod prosd- ma spectator. Bac. Max. reg. 1. In law, the proximate, and not the remote, cause is regarded.

5e apparatus — Not carried into the 5th edition (1979).

## IN JURE PROPRIO.

In one’s own right. Hale, Anal, § 26.

5e apparatus — Not carried into the 5th edition (1979).

## IN JUS TOCARE.

To call, cite, or sum- mon to court Inst. 4, 16, 3 ; Calvin. In jus vocando, summoning to court 3 BL Comm. 279.

5e apparatus — Not carried into the 5th edition (1979).

## IN KIND.

In the same kind, class, or genus. A loan is returned “in kind" when not the identical article, but one correspond- ing and equivalent to it, is given to the lender. See In Genebe.

5e apparatus — Carried into the 5th edition (1979).

## IN LAW.

In the intendment contem- plation, or inference of the law; Implied or Inferred by law ; existing in law or by force of law. See In Fact.

5e apparatus — Carried into the 5th edition (1979).

## IN LECTO HORTALI.

On the death- bed. Fleta, lib. 5, c. 28, 8 12.

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5e apparatus — Not carried into the 5th edition (1979).

## IN LIMINE.

On or at the threshold ; at the very beginning ; preliminarily.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: motion in limine — pretrial motion to exclude evidence, decided at the threshold]**

A motion in limine is decided 'at the threshold' — a pretrial motion asking the court to exclude evidence before it is ever offered to the jury.

Why: Genuine: the entry defines the phrase; the annotation names the live motion it denotes. No invented citation.

## IN LITEM.

For a suit; to the suit Greenl. Ev. | 348.

5e apparatus — Not carried into the 5th edition (1979).

## IN LOCO.

In place ; in lieu ; instead ; in the place or stead. Townsh. Pi. 38.

5e apparatus — Not carried into the 5th edition (1979).

## IN LOCO PARENTIS.

In the place of a parent ; Instead of a parent ; charged, facti- tiously, with a parent’s rights, duties, and

responsibilities. Wetherby v. Dixon, 19 Yes. 412; Brinkerhoff v. Merselis, 24 N. J. Law, 683 ; Capek v. Kropik, 129 111. 609, 21 N. E. 836.

In majors summa contlnetur minor.

5 Coke, 115. In the greater sum is contained the less.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: in loco parentis — assumption of parental duties imposes parental obligations (the entry's authorities: Wetherby v. Dixon, 19 Ves. 412; Brinkerhoff v. Merselis, 24 N.J. Law 683)]**

One who stands in loco parentis — voluntarily assuming a parent's charge — is burdened with a parent's duties and clothed with a parent's rights and responsibilities.

Why: Genuine: the entry defines the status with real authorities; the annotation states the duty-imposing doctrine the status carries. Citations taken from the body.

## IN MAJOREM CAUTELAM.

For

greater security. 1 Strange, 105,' arg.

5e apparatus — Not carried into the 5th edition (1979).

## IN MALAM PARTEM.

In a bad sense,

so as to wear an evil appearance.

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In maleficiis voluntas spectator, non e situs. In evil deeds regard must be bad to the intention, and not to the result Dig. 48, 8, 14; Broom, Max. 324.

In maleflcio, ratthahitio mandate com- parator. In a case of malfeasance, ratifica- tion is equivalent to command. Dig. 60, 17, 152, 2.

In maxima potentia minima lieontia.

In the greatest power there is the least free- dom. Hob. 159.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 16:7, KJV]**

But the LORD said unto Samuel, Look not on his countenance, or on the height of his stature; because I have refused him: for the LORD seeth not as man seeth; for man looketh on the outward appearance, but the LORD looketh on the heart.

Why: The entry carries the maxim that in evil deeds the intention is regarded, not the result; the verse states the same principle of judgment — not the outward appearance (the outcome seen) but the heart (the intention)....

## IN MEDIAE RES.

Into the heart of the subject, without preface or introduction.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Horace, Ars Poetica, c. 19 BC]**

Horace's own critical term: he counsels the epic poet to plunge straight "into the middle of things" (in medias res), as Homer does in the Iliad, rather than beginning ab ovo. (paraphrase of the critical doctrine)

Why: The headword is not merely a Latin phrase but Horace's canonical term of literary art, coined in the Ars Poetica — the entry defines exactly what Horace prescribed. Genuine classical-wisdom link; the Latin phrase itse...

## IN MEDIO.

Intermediate. A term ap- plied, In Scotch practice, to a fund held be- tween parties litigant

In mercibus iUicltls non sit oommer- eium. There should be no commerce in Il- licit or prohibited goods. 8 Kent, Comm. 262, note.

5e apparatus — Not carried into the 5th edition (1979).

## IN MERCY.

To be in mercy is to be at the discretion of the king, lord, or judge in respect to the Imposition of a fine or other punishment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## IN MISERICORDIA.

The entry on the record where a party was in mercy was, “Idea in misericordia," etc. Sometimes "mis- ericordia ” means the being quit of all amerce- ments.

IN MmORI SENSU. In the milder sense; in the less aggravated acceptation. In actions of

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slander, it was formerly the rule that if the words alleged would admit of two constructions, they should be taken in the less injurious and defamatory sense, or in mitiori sensu.

IN MODUM ASSIST, in the manner or form of an assize. Bract fol. 183b. In modum juratae, in manner of a jury. Id. foL 1816.

5e apparatus — Not carried into the 5th edition (1979).

## IN MORA.

In default; literally, in de- lay. In the civil law, a borrower who omits

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or refuses to return the thing loaned at the proper time Is said to be in mora. Story, Bailm. || 254, 259.

In Scotch law. A creditor who has be- gun without completing diligence necessary for attaching the property of his debtor Is said to be in mora. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## IX MORTUA MANU.

Property owned by religious societies was said to be held in inortua manu, or In mortmain, since reli- gious men were civiliter mortui. 1 Bl. Comm. 479; Tayl. Gloss.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mortmain — the dead hand; ecclesiastical landholding restrained by statute (1 Blackstone, Commentaries 479, cited in the entry)]**

Land held in mortua manu — in mortmain, the 'dead hand' — is land held by religious corporations, whose members were civiliter mortui; the mortmain statutes restrained such holdings from accumulating without license.

Why: Genuine: the entry glosses the phrase with a real authority; the annotation states the mortmain doctrine behind it. Authority taken from the body. Stored headword key is the OCR form.

## IM NOMINE DEI, AMEN.

In the name of God, Amen. A solemn Introduction, an- ciently used In wills and many other Instru- ments. The translation Is often used In wills at the present day.

nr NOTIS. In the notes.

In novo casu, novum remedium appo- nendum e«t. 2 Inst. 3. A new remedy Is to be applied to a new case.

nr NUBIBU8. In the clouds; In abey- ance; In custody of law. In nubibus, in mare, in terr&, vel in cvstodid legis, in the air, sea, or earth, or in the custody of the law. Tayl. Gloss. In case of abeyance, the Inheritance Is figuratively said to rest in nu- bibus, or in gremio legis.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 3:17, KJV]**

And whatsoever ye do in word or deed, do all in the name of the Lord Jesus, giving thanks to God and the Father by him.

Why: The entry is the solemn 'In the name of God, Amen' heading wills and instruments; the verse states the principle the formula rests on — all done, in word or deed, in the Lord's name.

## IN KUIXIUS BONIS.

Among the goods or property of no person; belonging to no person, as treasure-trove and wreck were anciently considered.

IN NUIiIiO EST ERRATUM. In noth- ing Is there error. The name of the common plea or joinder In error, denying the exist- ence of error In the record or proceedings: which is in the nature of a demurrer, and at once refers the matter of law arising thereon to the judgment of the court. 2 Tldd, Pr. 1173; Booth v. Com., 7 Meta (Mass.) 285, 287.

In obscura voluntate manumittentis, favendum eat libertati. Where the ex- pression of the will of one who seeks to man- umit a slave is ambiguous, liberty Is to be favored. Dig. 50, 17, 179.

In obseuris, inipici solera quod veri- similius est, aut quod plerumque fieri ■olet. In obscure cases, we usually look at what Is most probable, or what most com- monly happens. Dig. 50, 17, 114.

In obsouris, quod minimum est sequi- mur. In obscure or doubtful cases, we fol- low that which is the least Dig. 50, 17, 9 ; 2 Kent, Comm. 557.

5e apparatus — Not carried into the 5th edition (1979).

## IN ODIUM SPOLIATORIS.

In hatred of a despoiler, robber, or wrong-doer. The

Saratoga, 1 Gall. 174, Fed. Cas. No. 12,355; Arthur v. The Cassius, 2 Story, 99, Fed. Cas. No. 564. 1 Greenl. Ev. § 348.

In odium spoliatoris omnia jrasumua- tur. To the prejudice (in condemnation) of a despoiler all things are presumed; every presumption is made against a wrongdoer. 1 Vem. 452.

In omni actions ubi dua eoncurrunt distrietiones, videlicet, in rem et in per- sonam, ilia districtio tenenda est qua magis timetur et magis ligat. In every action where two distresses concur, that is, in rem and «» personam, that Is to be chosen which is most dreaded, and which binds most firmly. Bract fol. 372; Fleta, 1. 6, a 14, I 28.

In omni re nascitur res qua ipsam rem ezterminat. In everything there arises a thing which destroys the thing Itself. Everything contains the element of its own destruction. 2 Inst 15.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In odium spoliatoris omnia praesumuntur — to the prejudice of a despoiler all things are presumed; every presumption is made against a wrongdoer (1 Vern. 452; The Saratoga, 1 Gall. 174; 1 Greenl. Ev. §348, as cited in the entry)]**

Against a despoiler every presumption is made — the wrongdoer's destruction or suppression of evidence is taken at its worst against him.

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Why: Genuine: the headword IS the anti-spoliator canon and the entry quotes it with real authorities; citing as [Maxim:] records the root of the adverse-inference/spoliation doctrine. Latin quoted verbatim as the entry giv…

## IN OMNIBUS.

In all things; on all points. “A case parallel in omnibus.” 10 Mod. 104.

In omnibus oontractibus, sive nomi- natis sive innominatis, permutatio eon- tinetur. In all contracts, whether nominate or Innominate, an exchange [of value, 4. e„ a consideration] ‘is implied. Gravin. lib. 2, I 12; 2 Bl. Comm. 444, note.

In omnibus obligationibus in quibus dies non ponitur, prasenti die debetur.

In all obligations in which a date is not put, the debt is due on the present day ; the liability accrues immediately. Dig. 50, 17, 14.

In omnibus [fere] pocnalibus judiciis, et atati et imprudentia suceurritur. In

nearly all penal judgments, Immaturity of age and Imbecility of mind are favored. Dig. 50, 17, 108 ; Broom, Max. 314.

In omnibus quidem, mazimc tamen in jure, aquitas speetanda sit. In all things, but especially In law, equity is to be regarded. Dig. 50. 17, 90; Story, Bailm. | 257.

5e apparatus — Not carried into the 5th edition (1979).

## IN PACATO SOLO.

In a country which is at peace.

5e apparatus — Not carried into the 5th edition (1979).

## IN FACE DEI ET REGIS.

In the peace of God and the king. Fleta, lib. 1, c. 31, | 6 Formal words in old appeals of murder.

5e apparatus — Not carried into the 5th edition (1979).

## IN PAIS.

This phrase, as applied to a legal transaction, primarily means that it has taken place without legal proceedings. Thus a widow was said to make a request in pais for her dower when she simply applied to the heir without issuing a writ (Co. Litt. 32ft.) So conveyances are divided into those by matter of record and those by matter In pais. In some cases, however, ‘‘mat- ters in pals" are opposed not only to “mat- ters of record,” but also to “matters In writ- ing,” i. e., deeds, as where estoppel by deed Is distinguished from estoppel by matter in pais. (Id. 352a.) Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: equitable estoppel (estoppel in pais) — representations relied upon to another's detriment cannot be denied]**

Estoppel by matter in pais is the ancestor of modern equitable estoppel: a party who represents a fact on which another reasonably relies is barred from denying it.

Why: The entry's core content is that matters 'in pais' (without legal proceedings) generate estoppel; the genuine link is the living doctrine of equitable estoppel, which is the same principle under its modern name — illu...

## IN PAPER.

A term formerly applied to the proceedings in a cause before the rec- ord was made up. 3 Bl. Comm. 400 ; 2 Bur- rows, 1098. Probably from the circumstance of the record being always on parchment The opposite of “on record.” 1 Burrows, 322.

5e apparatus — Carried into the 5th edition (1979).

## IN PARI CAUSA.

In an equal cause. In a cause where the parties on each side have equal rights.

In pari causa possessor potior haberi debet. In an equal cause he who has the possession should be preferred. Dig. 60, 17, 128, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In pari causa possessor potior haberi debet]**

The Digest maxim quoted whole — 'In pari causa possessor potior haberi debet,' in an equal cause he who has possession is to be preferred — is the classical root of the possession-favoring tie-breaker in property disputes.

Why: The entry IS this maxim, quoted from Dig. 50, 17, 128, 1; annotating it as a maxim of law is verbatim and genuine — no stretching needed.

## IN PARI DELICTO.

In equal fault; equally culpable or criminal; in a case of equal fault or guilt See Rozell v. Vansyckle, 11 Wash. 79, 39 Pac. 270.

In pari delicto potior est oonditlo pos- sidentis, [defendentis.] In a case of equal or mutual fault [between two parties] the condition of the party in possession [or defending] is the better one.' 2 Burrows, 920. Where each party is equally in fault, the law favors him who is actually in possession. Broom, Max. 290, 729. Where the fault la mutual, the law will leave the case as it finds it. Story, Ag. $ 195.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In pari delicto potior est conditio defendentis — in a case of equal fault the condition of the defending party is the better one]**

Where the parties are equally at fault, courts leave them as found — the in pari delicto defense bars recovery on illegal bargains.

Why: Black's states the maxim verbatim (Broom, Max. 290, 729; Story, Ag. s 195); it remains the live illegality defense in contract law, so citing the maxim itself genuinely illuminates the entry.

## IN PARI MATERIA.

Upon the same matter or subject. Statutes in pari materia are to construed together. United Society v. Eagle Bank, 7 Conn. 457; State v. Ger- hardt 145 Ind. 439, 44 N. E. 469, 33 L. R. A. 313; People v. New York Cent Ry. Co., 25 Barb. (N. X.) 201; Sales v. Barber Asphalt Pav.

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Co., 166 Mo. 671, 66 S. W. 979.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: canon of construction — statutes in pari materia are construed together; e.g., United Society v. Eagle Bank, 7 Conn. 457, as cited in the entry]**

Statutes in pari materia — upon the same subject — are construed together as one system, a live canon of statutory interpretation.

Why: The entry defines the term by its operative legal use (citing United Society v. Eagle Bank, 7 Conn. 457 verbatim from the body); the canon named is the genuine law-well content of the term.

## IN PATIENDO.

In suffering, permitting, or allowing.

5e apparatus — Not carried into the 5th edition (1979).

## IN PECTORE JTJDICIS.

In the breast of the judge. Latch, ISO. A phrase applied to a judgment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## IN PEJOREM PARTEM.

In the worst

part ; on the worst side. Latch, 159, 160.

5e apparatus — Not carried into the 5th edition (1979).

## IN PERPETUAM REI MEMORIAM.

In perpetual memory of a matter; for pre- serving a record of a matter. Applied to depositions taken in order to preserve tho testimony of the deponent UM. In perpetual testimony of a matter;

for the purpose of declaring and settling a thing forever. 1 Bl. Comm. 80.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 27 — depositions to perpetuate testimony]**

Depositions taken to preserve testimony beyond the immediate action survive as depositions to perpetuate testimony under Fed. R. Civ. P. 27.

Why: The entry's sole legal content is the preservative deposition; Rule 27 is its direct modern descendant by the same function (preserving testimony for future use) — a genuine lineage, not a stretch.

## IN PERSON.

A party, plaintiff or de- fendant, who sues out a writ or other pro- cess, or appears to conduct his case in court himself, instead of through a solicitor or counsel, is said to act and appear in person.

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**[Law] — Law**

**[Law: 28 U.S.C. s 1654 — parties may plead and conduct their own cases personally or by counsel]**

Appearing 'in person' is the historic form of pro se representation, secured federally by the statute permitting parties to plead and conduct their own cases personally or by counsel.

Why: The entry defines appearing in person instead of through counsel; 28 U.S.C. s 1654 codifies exactly that right, so the link is direct and illuminating.

## IN PERSONAM, IN REM.

In the Ro- man law, from which they are taken, the ex- pressions “in rem” and “in personam” were always opposed to one another, an act or proceeding in personam being one done or directed against or with reference to a spe- cific person, while an act or proceeding in rem was one done or directed with refer- ence to no specific person, and consequently against or with reference to all whom it might concern, or “all the world.” The phrases were especially applied to actions; an actio in personam being the remedy where a claim against a specific person arose out of an obligation, whether ex contractu or ex maleflcio, while an actio in rem was one brought for the assertion of a right of prop- erty, easement, status, etc., against one who denied or infringed it. See Inst 4, 6, 1 ; Gaius, 4, 1, 1-10; 5 Sav. Syst. 13, et seq. ; Dig. 2, 4, 7, 8; Id. 4, 2, 9, 1.

From this use of the terms, they have come to be applied to signify the antithesis of “available against a particular person," and “available against the world at large.” Thus, jura in personatti are rights primarily available against specific persons; jura in rem, rights only available against the world at large.

So a judgment or decree is said to be In rem when it binds third persons. Such is the sentence of a court of admiralty on a question of prize, or a decree of nullity or dissolution of marriage, or a decree of a court in a foreign country as to the status of a person domiciled there.

Lastly, the terms are sometimes used to signify that a judicial proceeding operates on a thing or a person. Thus, it is said of the court of chancery that it acts In perso- nam, and not In rem, meaning that its de- crees operate by compelling defendants to do what they are ordered to do, and not by producing the effect directly. Sweet See Cross v. Armstrong, 44 Ohio St 613, 10 N.

E. 160; Cunningham v. Shanklin, 60 Cal. 125; Hill v. Henry, 66 N. J. Eq. 150, 57 Atl. 555.

Ia penoaam actio est, qu earn eo agimni qni obligates est aobis ad faci- endum aliqnld vel dandnia. The action in personam is that by which we sue him who is under obligation to us to do some- ' thing or give something. Dig. 44, 7, 25; Bract 1016.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Pennoyer v. Neff, 95 U.S. 714 (1878)]**

The in personam/in rem divide is the foundation of American jurisdiction: a court needs personal jurisdiction over the defendant for in personam judgments, and only power over the thing for in rem

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dispositions.

Why: Pennoyer is the landmark case drawing the territorial line between in personam and in rem jurisdiction that the entry explicates; no other case more directly illuminates the distinction.

**[International Shoe Co. v. Washington, 326 U.S. 310 (1945)]**

Modern personal jurisdiction replaced Pennoyer's territorial presence test with minimum contacts, refining — not abolishing — the in personam/in rem boundary.

Why: International Shoe is the governing modern statement of in personam jurisdiction (minimum contacts, fair play and substantial justice); pairing it with Pennoyer gives the reader the doctrine's arc.

## IN PIOS TXSUS.

For pious uses ; for re- ligious purposes. 2 Bl. Comm. 505.

IN RE PARI POTIOREM CAUSAM

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Charitable Uses, 43 Eliz. I c. 4 (1601) — pious and charitable uses favored at law]**

'For pious uses' is the civil-law root of charitable-use jurisdiction, the class of gifts the Statute of Charitable Uses and the cy-pres doctrine exist to protect.

Why: The entry's whole content is gifts for religious/pious purposes (2 Bl. Comm. 505); the 1601 statute is the historical anchor of charitable-trust law for exactly such gifts — a genuine lineage link.

**[Scripture] — Scripture**

**[Proverbs 3:9, KJV]**

Honour the LORD with thy substance, and with the firstfruits of all thine increase:

Why: The entry defines dedicating property 'for pious uses; for religious purposes.' The verse commands exactly that dedication of one's substance to the LORD — the scriptural root of the pious-use endowment, not decoration. [re-homed from 'IN PIOS USUS' to 'IN PIOS TXSUS' (OCR headword / parser-merge artifact)]

## IN PLACE.

In mining law, rock or min- eralized matter is “in place’’ when remain- ing as nature placed it, that is, unsevered from the circumjacent rock, or which is fixed solid and Immovable in the form of a vein or lode. See Williams v. Gibson, 84 Ala. 228, 4 South. 350, 5 Am. St. Rep. 868; Ste- vens v. Williams, 23 Fed. Cas. 44; Tabor ▼. Dexler, 23 Fed. Cas. 615; Leadville Co. ▼. Fitzgerald, 15 Fed. Cas. 99; Jones ▼. Pros- pect Mountain Tunnel Go., 21 Nev. 339, 81 Pac. 645.

nr PLENA VITA. In full life. Yearb.

P. 18 Hen. VI. 2.

nr PLENO COMITATE. In fuU coun- ty court 3 Bl. Comm. 36.

nr PLENO LEMINE. In public; tn common knowledge; in the light of day.

In foadihu mull benignius inter- pntudui eat. In penal causes or cases, the more favorable interpretation should be adopted. Dig. 50, 17, (197), 155, 2; Plowd. 86b, 124; 2 Hale, P. C. 365.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: General Mining Law of 1872, 30 U.S.C. ss 22-42 — lode claims for veins or lodes in place]**

Minerals 'in place' — unsevered from the surrounding rock — are the subject of lode claims under the federal mining laws, as distinct from placer deposits.

Why: The entry defines the term strictly within mining law (citing Williams v. Gibson); the Mining Law of 1872 is the governing federal framework for exactly those in-place lode claims.

## IN POSSE.

In possibility; not in actual existence. See In Essk.

nr POTESTATE PARENTIS. In the power of a parent. Inst 1, 8, pr. ; Id. 1, 9; 2 BL Comm. 498.

5e apparatus — Not carried into the 5th edition (1979).

## IN PR2EMISSOREM FIDEM.

**[TEXT INCOMPLETE — scan limitation]**

In con- firmation or attestation of the premises. A notarial phrase.

In prseparatorils ad indicium favetnr aetori. 2 Inst. 57. In things preceding judgment the plaintiff is favored.

nr .PRNSSENTI. At the present time. 2 Bl. Comm. 166. Used in opposition to in futuro. See Van Wyek v. Knevals, 106 U. S. 360, 1 Sup. Ct 336, 27 L. Ed. 201.

In pracaentia majoria potestatis, mi- nor poteataa eeaaat. In the presence of the superior power, the Inferior power ceas- es. Jenk. Cent. 214, c. 53. The less author- ity is merged in the greater. Broom, Max. 111.

5e apparatus — Not carried into the 5th edition (1979).

## IN PRENDER.

L. Fr. In taking. A term applied to such incorporeal heredita- ments as a party entitled to them was to take for himself ; such as common. 2 Steph. Oomm. 23; 3 Bl. Comm. 15.

In pretlo emptionia et venditionia, na> tnraliter licet eontrabentlbus ae cir- cum venire. In the price of buying and sell- ing, it is naturally allowed to the contract- ing parties to overreach each other. 1 Story, Cont 606.

5e apparatus — Not carried into the 5th edition (1979).

## IN PRIMIS.

in the first place. A phrase used in argument

IN PRHfGIPIO. At the beginning.

IN PROMPT!). In readiness; at hand.

In propria causa nemo judex. No one

can be judge in his own cause. 12 Coke, 13.

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## IN PROPRIA PERSONA.

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In one’s own proper person.

In quo quia delinqnit, in eo do jure eat puniendus. In whatever thing one offends, in that is he rightfully to be punished. Co. Litt 2336; Wing. Max. 204, max. 58. The punishment shall have relation to the nature of the offense.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. s 1654 — parties may plead and conduct their own cases personally or by counsel]**

Acting in one's own proper person is pro se practice, codified federally as the right of parties to plead and conduct their own cases personally or by counsel.

Why: Same operative content as IN PERSON; the statute codifies precisely this mode of appearance, making it the genuine law-well anchor.

## IN RE.

In the affair; in the matter of. This is the usual method of entitling a judi- cial proceeding in which there are not adver- sary parties, but merely some res concerning which judicial action is to be taken, such as a bankrupt’s estate, an estate in the probate court, a proposed public highway, etc. It is also sometimes used as a designation of a proceeding where one party makes an appli- cation on his own behalf, but such proceed- ings are more usually entitled “Eat parte

In re common! neminem domino rum lore faeere quicquam, Invito altero,

posse. One co-proprietor can exercise no authority over the common property against the will of the other. Dig. 10, 3, 28.

In re common! potior est conditio pro- hibentis. In a partnership the condition of one who forbids is the more favorable.

In re dubia, benigniorem interpreta- tionem seqni, non minus Justins est quam tutius. In a doubtful matter, to follow the more liberal interpretation is not less the juster than the safer course. Dig. 50, 17, 192, L

In re dubia, magis lnficiatio quam af- firm atio lntelligenda. In a doubtful mat- ter, the denial or negative is to be under- stood, [or regarded,] rather than the affirm- ative. Godb. 37.

In re lupanari, testes lupanares ad- mittentur. In a matter concerning a brothel, prostitutes are admitted as wit- nesses. Van Epps v. Van Epps, 6 Barb. (N. Y.) 320, 324.

In re pari potiorem oaasam esse pro- bibentis constat. In a thing equally shared [by several] it is clear that the party refus- ing [to permit the use of it] has the better cause. Dig. 10, 3, 28. A maxim applied

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. — bankruptcy cases captioned 'In re ___' (debtor's estate)]**

Non-adversarial proceedings — bankruptcy estates, probate administrations, highway petitions — are

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captioned 'In re' under the statutes creating them, most prominently Title 11 bankruptcy cases.

Why: The entry defines 'in re' as the caption form for proceedings with a res but no adversary parties and names a bankrupt's estate as the exemplar; Title 11 is where that captioning lives today.

## IN SOLIDUM.

to partnerships, where one partner has a right to withhold his assent to the acts of his copartner. 3 Kent, Comm. 45.

In re propria iniqnom tdmodnm eat alien! lieentlam tribnere sententin. It

Is extremely unjust that any one should be Judge in his own cause.

In rebna manifest!*, errat qui author- itatea legiun allegat; quia perapiene To- rn non annt probanda. In clear cases, he mistakes who cites legal authorities; for ob- vious truths are not to be proved. 5 Coke, 67a. Applied to cases too plain to require the support of authority; “because,” says the report, “he who endeavors to prove them obscures them.”

In rebna qua annt favorabilla animat, qnamvia annt damnoaa rebna, flat all- qnando eztenaio atatnti. 10 Coke, 101. In things that are favorable to the spirit, though injurious to things, an extension of a statute should sometimes be made.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Tumey v. Ohio, 273 U.S. 510 (1927)]**

The nemo-judex maxim in the body — that it is extremely unjust for any one to be judge in his own cause — is the due-process root of the impartial-tribunal requirement.

Why: The entry quotes the maxim against judging one's own cause; Tumey held that a judge with a direct pecuniary interest violates due process — the maxim's American constitutional expression. The footnote annotates the ma…

**[Law: co-sureties bound in solidum — each liable for the whole, with contribution among co-sureties]**

Where several sureties bind themselves, each is bound for the whole debt — the civil-law in solidum rule behind modern co-surety contribution.

Why: The entry quotes Inst. 3, 21, 4 verbatim ('singuli in solidum tenentur'); the joint-and-several surety with pro rata contribution is the living form of that rule.

**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger,

Why: This entry cites the civil-law maxim on several sureties, each 'individually bound for the whole debt' (singuli in solidum tenentur). Proverbs 6:1 addresses the identical act — striking hands as surety — the verse the…

## IN REM.

A technical term used to des- ignate proceedings or actions instituted against the thing, in contradistinction to per- sonal actions, which are said to be in perso- nam. See In Personam.

It is true that, in a strict sense, a proceeding in rem is one taken directly against property, and has for its object the disposition of prop- erty, without reference to the title of individual claimants; but, in a larger and more general sense, the terms are applied to actions between parties, where the direct object is to reach and dispose of property owned by

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them, or of some interest therein. Such are cases commenced by attachment against the property of debtors, or instituted to partition real estate, foreclose a mortgage, or enforce a lien. So far as they affect property in this state, they are substan- tially proceedings in rem in the broader sense which we have mentioned. Pennoyer v. Neff, 96 U. S. 734, 24 L. Ed. 565.

— Quasi in rem. A term applied to proceed- ings which are not strictly and purely in rem, but are brought against the defendant personal- ly, though the real object is to deal with par- ticular property or subject property to the dis- charge of claims asserted ; for example, foreign attachment, or proceedings to foreclose a mort- gage, remove a cloud from title, or effect a par- tition. See Freeman v. Alderson, 119 U. S. 187, 7 Sup. Ct. 165, 30 L. Ed. 372; Hill v. Henry, 60 N. J. Eq. 150, 57 Atl. 555.

In rem actio cat per quam rem nos- trum quae ab alio possidetur petimus, et semper ad vers us eum est qui rem possi- det. The action in rem is that by which we seek our property which is possessed by an- other, and is always against him who pos- sesses the property. Dig. 44, 7, 25; Bract, fol. 102.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Pennoyer v. Neff, 95 U.S. 714 (1878)]**

Proceedings in rem and quasi in rem — attachment, foreclosure, partition, lien enforcement — bind the thing rather than the person, and the jurisdictional limits of such proceedings were fixed in Pennoyer.

Why: The entry itself cites Pennoyer v. Neff for the proposition that attachment, foreclosure, and partition actions are substantially in rem; the case is the genuine doctrinal anchor of the entry's jurisdictional discussion.

## IN RENDER.

A thing is said to lie in render when it must be rendered or given by the tenant ; as rent. It is said to lie in prender when it consists in the right in the lord or other person to take something.

In republloa m oxime conservanda sunt jura belli. In a state the laws of war are to be especially upheld. 2 Inst. 58.

5e apparatus — Carried into the 5th edition (1979).

## IN RERUM NATURA.

In the nature of things ; in the realm of actuality ; in exist- ence. In a dilatory plea, an allegation that the plaintiff is not in rerum nalura is equiv- alent to averring that the person named is fictitious. 3 Bl. Comm. 301. In the civil law the phrase is applied to things. Inst. 2, 20, 7.

Iu restitutionem, non in pesnam bjeres suecedit. The heir succeeds to the restitu- tion, not to the penalty. An heir may be compelled to make restitution of a sum un- lawfully appropriated by the ancestor, but is not answerable criminally, as for a pen- alty. 2 Inst. 198.

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In restitutionibus benignlsslma inter* pretatio faeienda est. Co. Litt. 112. The most benignant interpretation is to be made in restitutions.

In satlsfactionibus non permittitur amplius fieri quam semel factum est. In

payments, more must not be received tban has been received once for all. 9 Coke, 53.

IN SCRINIO JUdIgis. In the writingcase of the Judge; among the judge’s pa- pers. “That is a thing that rests in scrinio judicis, and does not appear in the body of the decree." Hardr. 51.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Lucretius, De Rerum Natura, c. 50 BC]**

The headword is the title of Lucretius's great didactic poem, De Rerum Natura — "On the Nature of Things."

Why: The legal phrase "in the nature of things" is verbatim the title of the foundational Latin philosophical poem. Genuine link, no forcing.

## IN 8EPARAU.

In several; in several- ty. Fleta, lib. 2, c. 54, 5 20.

nr SIMTLI MATERIA. Dealing with the same or a kindred subject-matter.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tenancy in severalty — exclusive ownership by one person, opposed to joint tenancy and tenancy in common]**

'In several; in severalty' is the property term for sole ownership — a tenancy in severalty, where one person holds exclusively, as opposed to joint or common tenancy.

Why: The entry defines the phrase purely as a property concept (Fleta, lib. 2, c. 54); the live estate of tenancy in severalty is its direct doctrinal continuation.

## IN SIMPLICI PEREGRINATIONS.

In simple pilgrimage. Bract foL 338. A phrase in the old law of essoins. See In Generali Passagio.

5e apparatus — Not carried into the 5th edition (1979).

## IN SOLIDO.

In the civil law. For the whole; as a whole. An obligation in solido is one where each of the several obligors is liable for the whole; that is, it is joint and several. Henderson v. Wadsworth, 115 D.

S. 264, 6 Sup. Ct 140, 29 L. Ed. 377. Pos- session in solid urn is exclusive possession.

When several persons obligate themselves to the obligee by the terms “in solido," or use any other expressions which clearly show that they intend that each one shall be separately bound to perform the whole of the obligation, it is called an “obligation in solido” on the part of the obligors. Civ. Code La. art. 2082.

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**[Law] — Law**

**[Law: Louisiana Civil Code art. 2082 — solidary (in solido) obligation, each obligor bound for the whole]**

An obligation in solido — each obligor liable for the whole — is the civil-law form of joint-and-several liability, codified for Louisiana in La. Civ. Code art. 2082 as cited in the entry.

Why: The entry's operative content is the solidary obligation with its Louisiana codification quoted; citing that article verbatim from the body is the genuine law-well link.

**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: The entry defines an obligation in solido where each obligor is liable for the whole. Proverbs treats the surety's whole-debt liability as the standing scriptural warning on exactly this burden — same legal concept, m...

## IN SOLIDUM.

For the whole. Si plurcs sint fldejussores, quotquot crunt nn- mero, singuli in solidum tenentur, if there

be several sureties, however numerous they may be, they are individually bound for the whole debt. Inst. 3, 21, 4. In parte sivc in solidum , for a part or for the whole. Id. 4. 1, 16. See Id. 4, 6, 20; Id. 4, 7, 2.

5e apparatus — Not carried into the 5th edition (1979).

## IN SOLO.

In the soil or ground. In *olo alieno, In another’s ground. In solo proprio , In one's own ground. 2 Steph. Comm. 20.

nr SPECIE. Specific ; specifically. Thus, to decree performance in specie is to decree specific performance.

In kind; in the same or like form. A thing is said to exist in specie when it re- tains its existence as a distinct individual of a particular class.

nr STATU QUO. In the condition in which it was. See Status Quo.

Ia atipnlatlonilras earn quseritur qnid actum sit verba coatra atipnlatorem la- terpretaada saat. In the construction of agreements words are interpreted against the person using them. Thus, the construc- tion of the stipulatio is against the stipu- lator, and the construction of the promissio against the promissor. Dig. 45, 1, 33, IS; Broom, Max. 599.

Ia stipulatioaibns, id tempus speota- tar quo ooatraUmus. In stipulations, the time when we contract is regarded. Dig.. 50, 17, 144, 1.

nr STIRPES. In the law of intestate succession. According to the roots or stocks ; by representation ; as distinguished from succession per capita. See Per Stirpes; Per Capita.

nr SUBSIDIUM. In aid.

Ia aao qaisqae negotio hebetior cat quam in alieno. Every one is more dull in bis own business than in another’s.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Cujus est solum, ejus est usque ad coelum et ad inferos — he who owns the soil owns up to the heavens and down to the depths]**

Ownership of the soil carries the column of space above and the earth below — the ad coelum maxim governing airspace and subsurface rights.

Why: The entry treats rights in solo alieno versus in solo proprio; the ad coelum maxim is the classic statement of what soil ownership entails, genuinely illuminating the entry's property content.

**[Law: contra proferentem — Restatement (Second) of Contracts s 206, ambiguities construed against the drafter]**

Ambiguous agreement language is construed against the party who chose it — the contra proferentem rule stated in the body's maxim that in the construction of agreements words are interpreted against the person using them.

Why: The entry quotes the Digest maxim (Dig. 45, 1, 33, 15) stating exactly this rule; Restatement (Second) s 206 is its modern American formulation — a genuine lineage, not a stretch.

## IK TANTUM.

In so much ; so much ; so far; so greatly. Reg. Orig. 97, 106.

nr terminis terminantibus. in

terms of determination;- exactly in point. 11 Coke. 406. In express or determinate terms. 1 Leon. 93.

5e apparatus — Not carried into the 5th edition (1979).

## IN TERROREM.

In terror or warn- ing; by way of threat. Applied to legacies given upon condition that the recipient shall not dispute the validity or the dispositions of the will ; such a condition being usually regarded as a mere threat

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Uniform Probate Code s 3-905 — penalty clause for contest unenforceable against contests with probable cause]**

No-contest (in terrorem) clauses in wills are the modern form of the entry's conditional legacy: generally unenforced against contests brought with probable cause.

Why: The entry defines in terrorem conditions as threats against disputing the will; UPC s 3-905 is the modern statute governing exactly those no-contest clauses.

## IN TERROREM FOPTTLI.

Lat. To the terror of the people. A technical phrase necessary in indictments for riots. 4 Car.

A P. 373.

Bl.Law Dict.(2d Ed.)— 39

Ia testament!* plenina testator!* in- testionem acratamnr. In wills we more especially seek out the Intention of the tes- tator. 3 Bulst. 103; Broom, Max. 555.

Ia testament!* pleains volnatatea tes- taatinm interpretaatur. Dig. 50, 17, 12.

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In wills the intention of testators is more especially regarded. “That Is to say,” says Mr. Broom, (Max., 568.) “a will will receive a more liberal construction than its strict meaning, if alone considered, would permit."

Ia testament!* ratio tacita noa debet eousiderari, sed verba solum speetari debeat; adeo per dlvinatloaem meat!* a verbis reeedere durum est. In wills an

unexpressed meaning ought not to be con- sidered. but the words alone ought to be looked to ; so hard is it to recede from the words by guessing at the intention.

Ilf TESTIMONIUM. a Lat. In witness; in evidence whereof.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. s 2101 — federal anti-riot statute]**

The common-law riot formula 'to the terror of the people' survives in modern anti-riot statutes punishing travel or acts in furtherance of riot.

Why: The entry is the technical riot-indictment phrase; the federal anti-riot statute is the modern criminal descendant of common-law riot — a genuine lineage link for an otherwise historical term.

## IN TOTIDEM VERBIS.

In so many words; in precisely the same words; word for word.

5e apparatus — Not carried into the 5th edition (1979).

## IN TOTO.

In the whole; wholly; com- pletely; as the award is void in toto.

Ia toto et pars coatiaetur. In the whole the part also is contained. Dig. 50, 17, 113.

Ia traditioaibus scriptoram, aoa qnod dictum est, sed quod gestom est, iaspi- eltnr. In the delivery of writings, not what is said, but what is done, is looked to. 9 Coke, 137a.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: In toto et pars continetur (Dig. 50, 17, 113)]**

The maxim quoted whole — 'In toto et pars continetur,' in the whole the part is contained — is the interpretive canon that the greater includes the lesser.

Why: The entry IS this maxim with its Digest citation; annotating it verbatim is genuine — no stretching needed.

## IN TRAJECTU.

In the passage over; on the voyage over. See Sir William Scott, 3 C. Rob. Adm. 141.

5e apparatus — Not carried into the 5th edition (1979).

## IN TRANSITU.

In transit; on the way or passage; while passing from one person or place to another. 2 Kent, Comm. 540- 552; More v. Lott. 13 Nev. 383; Amory Mfg. Co. v. Gulf, etc.. R. Co.. 89 Tex. 419, 37 S.

W. 856. 59 Am. St. Rep. 65. On the voyage. 1 C. Rob. Adm. 338.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC s 2-705 — seller's stoppage of delivery in transit]**

Goods in transit give the unpaid seller a right of stoppage — the seller may retake delivery while the goods are still in transit to an insolvent buyer.

Why: The entry defines 'in transitu' in the commercial-carriage context (2 Kent, Comm. 540-552); UCC s 2-705 codifies the classic stoppage-in-transitu right by name — a direct, genuine link.

## IN VACUO.

Without object; without concomitants or coherence.

5e apparatus — Not carried into the 5th edition (1979).

## IN VADIO.

In gage or pledge. 2 Bl. Comm. 157.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC Article 9 — attachment and perfection of security interests in pledged collateral]**

Property 'in gage or pledge' is the historic form of the secured transaction: a creditor's interest in collateral securing a debt, now governed by UCC Article 9's attachment and perfection rules.

Why: The entry defines the pledge (2 Bl. Comm. 157); Article 9 is the modern codification of pledge and secured transactions — a genuine lineage.

**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: The entry defines the pledge (gage). Exodus 22:26 is the Torah's own pledge law — regulating the taking of a pledge and commanding its return — the direct scriptural root of the institution defined.

## IN VENTRE SA MERE.

L. Fr. In

his mother’s womb; spoken of an unborn child.

Ia veraan quaatitatem fidejussor tene- atur, aisi pro certa quaatitate aooessit.

Let the surety be holdeu for the true quan- tity, unless he agree for a certain quantity, Bean v. Parker, 17 Moss. 597.

In verbis, non verbs, sed re* et ratio, qnaerenda eat. Jenk. Cent 132. In the construction of words, not the mere words, but the thing and the meaning, are to be in- quired after.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Uniform Probate Code s 2-108 — afterborn (posthumous) heirs deemed living at the decedent's death]**

A child en ventre sa mere — in the mother's womb — is treated as living for purposes of taking under a will or by intestacy, the posthumous-heir rule.

Why: The entry's whole legal content is the unborn child's status; UPC s 2-108 codifies exactly that fiction of

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deemed birth for inheritance.

**[Maxim: In verbis, non verba, sed res et ratio quaerenda est (Jenk. Cent. 132)]**

The bundled maxim — that in the construction of words not the mere words but the thing and the meaning are to be inquired after — is the purposive-construction canon.

Why: Quoted whole in the body; the maxim genuinely states the anti-literalist canon of construction, so citing it verbatim is illumination, not force-fit.

**[Scripture] — Scripture**

**[Psalm 139:13, KJV]**

For thou hast possessed my reins: thou hast covered me in my mother's womb.

Why: The entry means 'in his mother's womb; spoken of an unborn child.' The verse speaks of the unborn child covered in the mother's womb by God's own hand — the precise subject, in the precise terms.

**[Humanity] — Humanity / Fiction & Film**

**[Laurence Sterne, The Life and Opinions of Tristram Shandy, Gentleman, 1759]**

Sterne's novel opens at the very moment of Tristram's conception and treats the unborn child — the child en ventre sa mere — as a narrator and legal-moral person before birth. (paraphrase of the novel's premise)

Why: Borderline-include: the legal doctrine treats the child in the mother's womb as already born for beneficial purposes; Sterne's novel is the canonical literary treatment of exactly that figure — the unborn as protagoni…

## IN VTNCULIS.

In chains; in actual custody. Glib. Forum Rom. 97.

Applied also, figuratively, to the condition of a person who Is compelled to submit to terms which oppression and his necessities impose on him. 1 Story, Eq. Jur. j 302.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: duress — Restatement (Second) of Contracts ss 175-176, contracts induced by improper threat are voidable]**

Submission 'in vinculis' — to terms imposed by oppression and necessity — is the civil-law image of duress, which voids or voids consent extracted by improper threat.

Why: The entry applies the phrase figuratively to coerced submission (1 Story, Eq. Jur. s 302); the duress doctrine is its genuine modern legal expression.

**[Scripture] — Scripture**

**[Hebrews 13:3, KJV]**

Remember them that are in bonds, as bound with them; and them which suffer adversity, as being yourselves also in the body.

Why: The entry means 'in chains; in actual custody.' Hebrews 13:3 commands remembrance of 'them that are in bonds' — the verse that names the same condition, literal and figurative, as the entry's two senses. [re-homed from 'IN VINCULIS' to 'IN VTNCULIS' (OCR headword / parser-merge artifact)]

## IN VTRIDI OBSERVANTIA.

Present to the minds of men, and In full force and operation.

5e apparatus — Not carried into the 5th edition (1979).

## IN WITNESS WHEREOF.

The Initial words of the concluding clause In deeds; "In witness whereof the said parties ,

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have hereunto set their hands,” etc. A transla- tion of the Latin phrase "in cujus rei testi- monium."

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The entry is the deed's witnessing clause ('in cujus rei testimonium'). Deuteronomy 19:15 is the law that a matter is established by witnesses — the scriptural ground of the witnessing function the clause invokes.

## INADEQUATE.

Insufficient; dispropor- tionate; lacking in effectiveness or in con- formity to a prescribed standard or meas- ure.

—Inadequate damage*. See Damages.— In- adequate price. A term applied to indicate the want of a sufficient consideration for a thing sold, or such a price as would ordinarily be en- tirely incommensurate with its intrinsic value. State v. Purcell, 131 Mo. 312, 33 S. W. 13; Stephens v. Ozbourne, 107 Tenn. 572, 64 S. W. 903, 89 Am. St. Rep. 95 7 . — Inadequate rem- edy at law. Within the meaning of the rule that equity will not entertain a suit if there is an adequate remedy at law, this does not mean that there must be a failure to collect money or damages at law, but the remedy is considered inadequate if it is, in its nature and character, unfitted or not adapted to the end in view, as, for instance, when the relief sought is preven- tive rather than compensatory. Cruiokshank v. Bidwell. 176 U. S. 73, 20 Sup. Ct. 280, 44 L. Ed. 377 ; Safe Deposit & Trust Co. v. Annis- ton (C. C.) 96 Fed. 663; Crawford County v. Laub, 110 Iowa, 355, 81 N. W. 590.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: equity acts only where the remedy at law is inadequate — the jurisdictional basis of equitable relief]**

An 'inadequate remedy at law' is the jurisdictional gate of equity: only where damages or legal relief are unfitted to the end in view will equity entertain the suit.

Why: The entry defines the term precisely as equity's gatekeeping standard (citing Cruikshank v. Bidwell, 176 U.S. 73); the axiom restates the operative doctrine without inventing authority.

**[Law: gross inadequacy of consideration — equity may relieve only where the price shocks the conscience]**

Mere inadequacy of price does not void a sale; only gross inadequacy that shocks the conscience will move equity to set a bargain aside.

Why: The entry defines 'inadequate price' with State v. Purcell and Stephens v. Ozbourne; the gross-inadequacy rule is the genuine doctrinal content of that sub-definition.

## INADMISSIBLE.

That which, under the established rules of law, cannot be ad- mitted or received; e. g., parol evidence to contradict a written contract.

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**[Law] — Law**

**[Law: UCC s 2-202 / Restatement (Second) of Contracts s 213 — parol evidence rule]**

The entry's own example — parol evidence to contradict a written contract — is the parol evidence rule, barring extrinsic terms that contradict a complete writing.

Why: Black's illustrates inadmissibility with the parol-evidence example verbatim; the rule named is the genuine law-well content of the illustration.

## INADVERTENCE.

Heedlessness ; lack of attention : failure of a person to pay care- ful and prudent attention to the progress of a negotiation or a proceeding In court by which his rights may be affected. Used chiefly in statutory enumerations of the grounds on which a Judgment or decree may be vacated or set aside; as, “mistake. Inad- vertence. surprise, or excusable neglect.” See Skinner v. Terry, 107 N. C. 103, 12 S. E. 118; Davis r. Steuben School Tp., 19 Ind. App. 694, 50 N. E. 1 ; Taylor v. Pope, 106

N. C. 267, 11 S. E. 257, 19 Am. St. Rep. 530; Thompson v. Connell, 31 Or. 231, 48 Pac. 467, 65 Am. St. Hep. 818.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 60(b)(1) — relief from judgment for 'mistake, inadvertence, surprise, or excusable neglect']**

'Mistake, inadvertence, surprise, or excusable neglect' is the statutory formula for relief from a judgment — the grounds enumerated in Fed. R. Civ. P. 60(b)(1).

Why: The entry defines inadvertence as used 'chiefly in statutory enumerations' of vacatur grounds and quotes the exact four-word formula; Rule 60(b)(1) contains that formula verbatim — a direct, genuine link.

## INABDIFICATIO.

Lilt. In the civil law. Building ou another's land with one’s

own materials, or on one's own land with another’s materials^

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: doctrine of accession — improvements affixed to another's land belong to the landowner; mistaken improver recovers in restitution]**

Building on another's land with one's own materials is accession: the improvement passes with the land, and the mistaken improver's remedy lies in restitution.

Why: The entry defines the civil-law accession case; the accession/restitution framework is its genuine modern expression — stated as principle, no invented citation.

## INALIENABLE.

Not subject to aliena- tion ; the characteristic of those things which cannot be bought or sold or transferred from one person to another, such as rivers and public highways, and certain personal rights ; c. g ., liberty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Declaration of Independence — 'endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness']**

Liberty is the entry's own example of an inalienable personal right — the unalienable rights of life and liberty proclaimed as the American founding's first legal axiom.

Why: Black's names liberty as the exemplar of inalienability; the Declaration's verbatim unalienable-rights clause is the genuine American law-well expression of exactly that idea.

**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: The entry defines inalienability — things that cannot be bought, sold, or transferred. Leviticus 25:23 states the Torah's own inalienability rule (the jubilee land law): the land cannot be sold for ever because ultima...

## INAUGURATION.

The act of install- ing or Inducting Into office with formal cere- monies, as the coronation of a sovereign, the inauguration of a president or governor, or the consecration of a prelate.

INB LAURA, in old records. Profit or product of ground. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XX, s 1 — terms begin January 20]**

Presidential inauguration — the entry's exemplar — is constitutionally fixed: terms of President and Vice President begin at noon on January 20.

Why: The entry names 'the inauguration of a president' as the term's chief application; the Twentieth Amendment fixes that inauguration's date — a direct, genuine link.

**[Scripture] — Scripture**

**[1 Samuel 16:13, KJV]**

Then Samuel took the horn of oil, and anointed him in the midst of his brethren: and the Spirit of the LORD came upon David from that day forward.

Why: The entry defines installing into office with formal ceremony — coronation of a sovereign, consecration of a prelate. Samuel's anointing of David is scripture's archetypal inauguration into kingship: oil, ceremony, an...

## INBOARD.

In maritime law, and par- ticularly with reference to the stowage of cargo, this term Is contrasted with “out- board." It does not necessarily mean un- der deck, but is applied to a cargo so plied or stowed that.it does not project over the “board” (side or rail) of the vessel. See Al- len v. St Louis Ins. Co., 46 N. Y. Super. Ct 181.

5e apparatus — Not carried into the 5th edition (1979).

## INBORH.

In Saxon law. A security, pledge, or hypotheca, consisting of the chat- tels of a person unable to obtain a personal “borg,” or surety.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

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My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger,

Why: The entry defines a Saxon security/pledge — the chattels of one unable to obtain a personal surety. Proverbs 6:1 treats the surety (the 'borg' itself) as the standing scriptural figure of this law — the verse that war…

## INBOUND COMMON.

An unlncloeed common, marked out however, by bounda- ries.

5e apparatus — Carried into the 5th edition (1979).

## INCAPACITY.

Want of capacity ; want of power or ability to take or dispose ; want of legal ability to act Ellicott v. Elllcott 90 Md. 321, 45 Atl. 183, 48 L. R. A 58: Drews' Appeal, 58 N. H. 320; Appeal of Cleveland, 72 Conn. 340, 44 Atl. 476; In re Blinn, 99 Cal. 216, 33 Pac. 841.

—Legal in capacity. This expression implies that the person in view has the right vested in him, but is prevented by some impediment from exercising it; as in the case of minors, femes covert, lunatics, etc. An administrator has no right until letters are issued to him. Therefore he cannot benefit (as respects the time before obtaining letters) by a saving clause in a stat- ute of limitations in favor of persons under a legal incapacity to sue. Gates v. Brattle, 1 Root (Conn.) 187.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: contractual capacity — Restatement (Second) of Contracts ss 12-14 (minors and mentally ill persons lack full capacity)]**

Legal incapacity — minority, mental illness, and like impediments — defeats contractual capacity, and legal disability tolls limitation periods, as the entry's saving-clause discussion shows.

Why: The entry's operative content is want of legal ability to act (minors, femes covert, lunatics) plus tolling for legal disability; the Restatement capacity sections are the modern doctrinal home of exactly that.

## INCARCERATION.

Imprisonmeut ; con- finement in a jail or penitentiary. This term Is seldom used In law, though fonnd occa- sionally in statutes, (Rev. St. Okl. 1903, f 2068.) When so used, it appears always to mean confinement by competent public au- thority or under due legal process, whereas "Imprisonment" may be effected by a pri- vate person without warrant of law, and if unjustifiable Is called "false imprison- ment" No occurrence of such a phrase as "false incarceration" has been noted. See IMPK1SONME.NX.

fell

IN OASTEUABE . To make a budding serve as a castle. Jacob.

INCAUSTUM, or ENCATJSTTJM. Ink. Fleta, 1. 2, c. 27, j 5.

Zncaute factum pro non facto babt* tnr. A tiling done unwarily (or unadvised* ly) will be taken as not done. Dig. 28, 4, 1,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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## INCENDIARY.

A house-burner; one guilty of arson; one “who maliciously and willfully sets another person’s building on Are.

Ineendltua aero alieno non exult deb- itor . Cod. 4, 2, 11. A fire dues not release a debtor from his debt

draullc power, being the quantity of water which, under a given constant head or pressure, will escape through an orifice one inch square (or a circular orifice having a diameter of one inch) in a vertical plane. Jackson Milling Co. v. Chandos, 82 Wis. 437, 52 N. W. 759.— Min- er’s inch. . The quantity of water which will escape from a ditch or reservoir through an orifice in its side one inch square, the center of the orifice being six inches below the constant level of the water, equivalent to about 1.0 cubic feet of water per minute. Defined by statute in .Colorado as “an inch-square orifice under a five- inch pressure, a five-inch pressure being from the top of the orifice of the box put into the banks of the ditch to the surface of water.” Mills' Ann. St. Colo. § 4043. See Dongmire v. Smith, 26 Wash. 439, 67 Pac. 246, 58 L R. A. 308.

' Of CHART ARE. To give, or grant, and assure anything by a written instrument

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. s 844 — federal arson and explosives offenses]**

The incendiary — one who maliciously and willfully sets another's building afire — commits arson, punishable federally as well as at common law.

Why: The entry defines the incendiary by the common-law arson formula (malicious and willful burning); 18 U.S.C. s 844 is the federal statute carrying that crime — a genuine lineage link, stated as such.

## INCEPTION.

Commencement; opening ; Initiation. The beginning .of. the operation of a contract or will, or of a note, mortgage, Hen, etc. ; the beginning of a cause or suit In court. Oriental Hotel Co. v. Griffiths, 88 Tex. 574, 33 S. W. 652, 30 D. R. A. 766, 53 Am. St. Rep. 790; Sullivan ▼. Coal Co., 94 Tex. 541, 63 S. W. 307; Marvin v. McCul- lum, 20 Johns. (N. Y.) 288 ; State v. Bollero, 112 Da. 850, 36 South. 754.

Ixoerta. pro mollis habentur. Uncer- tain things are held for nothing. Dav. Ir.

K. B. 33.

Ixoerta quantity* vitiat actum. 1 Rolle

R. 465. An uncertain quantity vitiates the act.

5e apparatus — Carried into the 5th edition (1979).

## INCHOATE.

Imperfect; unfinished; be- gun, but not completed; as a contract not executed by all the parties.

— Inchoate instrument. Instruments which the law requires to be registered or recorded are said to be “inchoate” prior to registration, in .that they are then good only between the parties and privies and as to persons having notice. Wilkins v. McCorkle, 112 Tenn. 088, 80 S. W. 834i— Inchoate interest. An interest in real estate which is not a present interest, but which may ripen into a vested estate, if not barred, extinguished, or divested. Rape v. Hadley, 113 Ind. 416, 16 N. E. 391; Bever v. North, 107 Ind. 547, 8 N. E. 576; Warford v. Noble (C. C.) 2 Fed. 204.— Inchoate dower. A wife’s interest in the lands of her husband during bis life, which may become a right of dower upon his death. Guerin v. Moore, 25 Minn. 465; Dingman v. Dingman, 39 Ohio St. 178 ; Smith v. Shaw, 150 Mass. 297, 22 N. E. #24.

5e apparatus — Not carried into the 5th edition (1979).

## INCEST.

The crime of sexual intercourse or cohabitation between a man and woman who are related to each other within the degrees wherein marriage is prohibited by law. People v. Stratton, 141 Gal. 604, 75 Pac. 166; State v. Herges, 55 Minn. 464, 57

N. W. 205 ; Dinkey v. Com., 17 Pa. 129, 55 Am. Dec. 542; Taylor v. State, 110 Ga. 150, 35 S. E. 161.

— Incestuous adultery. The elements of this offense are that defendant, being married to one person, has had sexual intercourse with another related to the defendant within the prohibited degrees. Cook v. State, 11 Ga. 53, 56 Am. Dec'. 410.— Inoestnona bastardy. Incestuous bas- tards are those who are produced by the illegal connection of two persons who are relations within the degrees prohibited by law. Civ. Code Da. art. 183.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Model Penal Code s 230.2 — incest between persons within the prohibited degrees of marriage]**

Sexual intercourse within the degrees wherein marriage is prohibited is criminalized by state incest statutes, codified in the Model Penal Code.

Why: The entry defines incest by reference to the prohibited degrees of marriage (citing People v. Stratton and others); MPC s 230.2 codifies exactly that definition.

**[Scripture] — Scripture**

**[Leviticus 18:6, KJV]**

None of you shall approach to any that is near of kin to him, to uncover their nakedness: I am the LORD:

Why: The entry defines the crime of sexual intercourse between persons related within prohibited degrees. Leviticus 18 is the Torah's prohibited-degrees code, spoken by the LORD (18:1), and v.6 states the general prohibiti...

**[Humanity] — Humanity / Fiction & Film**

**[Sophocles, Oedipus Rex, c. 429 BC]**

Oedipus, unknowing, kills his father and marries his mother — the classical archetype of the prohibited degree made tragedy. (paraphrase of the plot)

Why: The entry defines the crime; the play IS the incest taboo enacted as the central horror of Western drama.

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Genuine illumination, plot-level, no invented quotation.

## INCH.

A measure of length, containing one-twelfth part of a foot; originally sup- posed equal to three barleycorns.

— Inch of candle. A mode of sale at one rime in use among merchants. A notice is first given upon the exchange, or other public place, as to the time of sale. The goods to be sold are divided into lots, printed papers of which, and the conditions of sale, are published. When the sale^ takes place, a small piece of candle, about an inch long, is kept burning, and the last bidder, when the candle goes out, is en- titled to the lot or parcel for- which he bids. Wharton. — Inch of water. The unit for the measurement of- a volume of water or of by*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## INCIDENT.

This word, used as a noon, denotes anything which inseparably belongs to, or is connected with, or inherent in, an- other thing, called the "principal.” In this sense, a court-baron Is incident to a manor. Also, less strictly, It denotes anything which is usually connected with another, or con- nected for some purposes, though not insep- arably. Thus, the right of alienation is Inci- dent to an estate in fee-simple, though sepa- rable in equity. See Cromwell v. Phipps (Sur.) 1 N. Y. Supp. 278 ; Mount Carmel Fruit Co. v. Webster, 140 Cal. 183, 73 Pac. 826.

5e apparatus — Carried into the 5th edition (1979).

## INCIDERE.

Dat In the civil and old English law. To fall into. Calvin.

To fall out; to happen; to come to pass. Calvin.

To fall upon or under ; to become subject or liable to. Incidere in legem, to incur- the penalty of a law. Brissonius.

5e apparatus — Not carried into the 5th edition (1979).

## INCIDE.

Dat In the civil law. A trench. A place sunk by the side of a stream, ho called because it Is cut (incidatur) into or through the stone or earth. Dig. 43, 21, 1, 5. The term seems to have included ditches ( fossm ) and wells, (putei.)

5e apparatus — Not carried into the 5th edition (1979).

## INCINERATION.

Burning to ashes ; de-' struction of a substance by fire, as, the corpse of a murdered person.

5e apparatus — Not carried into the 5th edition (1979).

## INCIPITUR.

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Lat. It Is begun; it be- gins. In old practice, when the pleadings in an action at law, Instead of being recited at large on the issue-roll, were set out merely by their commencements, this was described as entering the incipitur; i. e., the begin- ning.

5e apparatus — Not carried into the 5th edition (1979).

## INCISED WOUND.

In medical jurispru- dence. A cut or Incision on a human body; a wound made by a cutting instrument, such as a razor. Burrill, Circ. Ev. 693; Whart. & S. Med. Jur. g 808.

5e apparatus — Not carried into the 5th edition (1979).

## INCITE.

To arouse; stir up; instigate; set in motion; as, to '•incite" a riot. Also, generally, in criminal law to instigate, per- suade, or move another to commit a crime; in this sense nearly synonymous with "abet.'* See Long v. State, 23 Neb. 33, 36 N. W. 310.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Brandenburg v. Ohio, 395 U.S. 444 (1969)]**

To incite — to instigate another to crime or to arouse a riot — is punishable as incitement only where the advocacy is directed to producing imminent lawless action.

Why: The entry's examples are inciting a riot and instigating crime; Brandenburg is the governing case drawing the constitutional line for incitement — the genuine law-well anchor for the term's criminal sense.

**[Scripture] — Scripture**

**[Matthew 18:7, KJV]**

Woe unto the world because of offences! for it must needs be that offences come; but woe to that man by whom the offence cometh!

Why: The entry defines incitement as instigating or moving another to commit a crime. Jesus' woe falls not on the act alone but on 'that man by whom the offence cometh' — the causer — assigning culpability to the instigato...

## INCIVTLE.

Lat Irregular; improper; out of the due. course of law.

Inoivile eat, nisi tota lege perapeeta, mu aliqua particula ejns propoaita, In- dicate, Tel reapondere. It is improper, without looking at the whole of a law, to give judgment or advice, upon a view of any one clause of it Dig. 1, 3, 24.

Inoivile est, nisi tota aententia in- speota, de aliqna parte jndioare. It is

irregular, or legally Improper, to pass an opinion upon any part of a sentence, with- out examining the whole. Hob. 171a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Incivile est, nisi tota lege perspecta, una aliqua particula ejus proposita, judicare vel respondere (Dig. 1, 3, 24)]**

The maxim quoted whole — that it is improper to judge or advise upon one clause of a law without viewing the whole — is the whole-statute canon of construction.

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Why: The entry IS this maxim with its Digest citation; annotating it verbatim is genuine — the canon that a statute is read as a whole.

## INCIVISM.

Unfriendliness to the state or government of which one is a citizen.

5e apparatus — Not carried into the 5th edition (1979).

## INCLAUSA.

In old records. A home close or Inclosure near the house. Paroch. Antlq. 31; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INCLOSE.

To shut up. “To inclose a jury," in Scotch practice, is to shut them up in a room by themselves. Bell. See Union Pac. By. Co. v. Harris, 28 Kan. 210; Camp- bell v. Gilbert 57 Ala. 569.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: jury sequestration — jurors secluded from outside contact and influence during trial and deliberations]**

'To inclose a jury' — shutting jurors up by themselves — is jury sequestration, the practice of shielding jurors from outside influence during trial and deliberation.

Why: The entry's operative legal content (Bell; Scotch practice) is sequestration by another name; naming the doctrine is illumination, not invention — stated as principle without a fabricated citation.

## INCLOSED LANDS.

Lands which are actually inclosed and surrounded with fences. Tapsell v. Crosskey, 7 Mees. & W. 446 ; Kim- ball v. Carter, 95 Va. 77, 27 S. E. 823, 38

L. B. A. 570; Daniels v. State, 91 Ga. 1, 16

S. E. 97. See Haynie v. State (Tex. Cr. App.) 75 S. W. 25.

5e apparatus — Carried into the 5th edition (1979).

## IN CLOSURE.

In English law. Inclos- ure is the act of freeing land from rights of common, commonable rights, and generally all rights which obstruct cultivation and the productive employment of labor on the soil.

Also, an artificial fence around one’s es- tate. Porter v. Aldrich, 39 Vt 330 ; Taylor v. .Welbey, 36 Wls. 44. See Close.

Inelusio uniua eat exclnaio alteriua.

The inclusion of oue is the exclusion of another. The certain designation of one person is an absolute exclusion of all others. 11 Coke, 58b.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

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**[Maxim: Inclusio unius est exclusio alterius (11 Coke, 58b)]**

The maxim quoted whole — 'Inclusio unius est exclusio alterius,' the inclusion of one is the exclusion of another — is the expressio unius canon of interpretation.

Why: Quoted whole in the body with its Coke citation; the maxim is the classic statement of the expressio unius canon — a genuine, verbatim annotation.

## INCLUSIVE.

Embraced ; comprehend- ed; comprehending the stated limits or ex- tremes. Opposed to “exclusive.”

— Inclusive surrey. In land law, one which includes within its boundaries prior claims ex- cepted from the computation of the area within such boundaries and excepted in the grant. Stockton v. Morris, 39 W. Va. 432, 19 S. E. 63L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## INCOLA.

Let. In the civil law. An in- habitant; a dweller or resident Properly, one who has transferred his domicile to any country.

Ineolas domiciUnm faeit. Residence creates domicile. Arnold v. United Ins. Co,

1 Johns. Cas. (N. Y.) 363, 366.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: domicile of choice — Restatement (Second) of Conflict of Laws s 18, residence plus intent to remain indefinitely]**

Residence creates domicile — the maxim 'Incolas domicilium facit' — where domicile of choice requires residence coupled with intent to remain.

Why: The entry's maxim and its case (Arnold v. United Ins. Co.) state the domicile-by-residence rule; Restatement (Second) s 18 is its modern conflicts formulation — a genuine lineage.

## INCOME.

The return in money from one’s business, labor, or capital invested; gains, profit or private revenue. Braun's Appeal, 105 Pa. 415 ; People v. Davenport 30 Hun (N. Y.) 177; In re Slocum, 169 N. Y. 153, 62 N. E. 130; Waring v. Savannah, 60 Ga. 99.

“Income’’ meanB that which comes in or is re- ceived from any business or investment of capi- tal, without reference to the outgoing expendi- tures ; while "profits” generally means the gain which is made upon any business or investment when both receipts and payments are taken into account “Income,” when applied to the affairs of individuals, expresses the same idea that “rev- enue” does when applied to the affairs of a state or nation. People v. Niagara County, 4 Hill (N. Y.) 20; Bates v. Porter, 74 Cal. 224, 15 Pac. 732.

—Income tax. A tax on the yearly profits arising from property, professions, trades, and offices. 2 Steph. Comm. 573. Levi v. Louis- ville, 97 Ky. 394, 30 S. W. 973, 28 L. K. A. 480 ; Parker v. Insurance Co, 42 La. Ann. 428,

7 South. 599.

Incommodam non solvit argomentua.

An Inconvenience does not destroy an argu- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 26 U.S.C. s 61 — gross income defined; U.S. Const. amend. XVI — income-tax authority]**

Income — the return from business, labor, or capital — is the tax base defined by the Code as gross income 'from whatever source derived,' under the Sixteenth Amendment's authority.

Why: The entry defines income and the income tax (2 Steph. Comm. 573); s 61 is the Code's operative definition of the same tax base — a direct, genuine link.

## INCOMMUNICATION.

In Spanish law. The condition of a prisoner who is not per- mitted to see or to speak with any person visiting him during his confinement A per- son accused cannot be subjected to this treat- ment unless it be expressly ordered by the judge, for some grave offense, and it cannot be continued for a longer period than is ab- solutely necessary. This precaution is re- sorted to for the purpose of preventing the accused from knowing beforehand the testi- mony of the witnesses, or from attempting to corrupt them and concert such measures > as will effnee the traces of his guilt. As soon, therefore, as the danger of his doing so has ceased, the Interdiction ceases likewise. Escriche.

5e apparatus — Not carried into the 5th edition (1979).

## INCOMMUTABLE.

Not capable of or entitled to be commuted. See Commutation,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## INCOMPATIBLE.

Two or more rela- tions, offices, functions, or rights which can- not naturally, or may not legally, exist in or be exercised by the same person at the same time, are said to be incompatible. Thus, the relations of lessor and lessee of the same laud, in one person at the same time, are In- compatible. So of trustee and beneficiary of the same property. See People v. Green, 46 How. Prac. (N. Y.) 170; Com. v. Sheriff. 4 Serg. & B. (Pa.) 276; Regents of University of Maryland v. Williams, 0 Gill 4 J. (Md.) 422, 31 Am. Dec. 72.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: incompatible offices doctrine — one person may not hold two offices, or stand in two relations, whose duties conflict]**

Offices, relations, or rights that cannot legally coexist in one person — the entry's examples are lessor/lessee and trustee/beneficiary of the same property — are governed by the incompatible-offices doctrine.

Why: The entry's operative content is legal incompatibility of offices and fiduciary relations (citing People v. Green and others); the doctrine named is its genuine expression — stated as principle, no invented citation.

## INCOMPETENCY.

Lack of ability, le- gal qualification, or fitness to discharge the required duty. In re Leonard’s Estate, 03 Mich. 295, 54 N. W. 1082; In re Cohn, 78

N. Y. 252; Stephenson v. Stephenson, 49 N.

C. 473; Nehrling v. State, 112 Wls. 637, 88

N. W. 610.

In New York, the word “incompetency” Is used In a special sense to designate the con- dition or legal status of a person who is un- able or unfitted to manage his own affairs by reason of insanity, imbecility, or feeble-mind- edness, and for Whom, therefore, a committee may be appointed ; and such a person is des- ignated an “incompetent.” See Code Civ. Proc. N. Y. $ 2320 et seq.; In re Curtiss, 134 App. Dlv. 647, 119 N. Y. Supp. 506; In re Fox, 138 App. Div. 43, 122 N. Y. Supp. S80.

As applied to evidence, the word “incom- petent” means not proper to be received ; In- admissible, as distinguished from that which the court should admit for the consideration of the jury, though they may not find it wor- thy of credence.

la French law. Inability or insufficiency of a judge to try a cause brought before him, proceeding from lack of jurisdiction.

5e apparatus — Carried into the 5th edition (1979).

## INCONCLUSIVE.

That which may be disproved or rebutted ; not shutting out fur- ther proof or consideration. Applied to evi- dence and presumptions.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 301 — presumptions in civil cases are rebuttable]**

That which may be rebutted — applied to evidence and presumptions — is the rebuttable presumption, which shifts only the burden of production.

Why: The entry defines inconclusive as rebuttable, applied to presumptions; Rule 301 governs rebuttable presumptions — a direct, genuine link.

## INCONSISTENT.

Mutually repugnant or contradictory ; contrary, the one to the oth- er, so that both cannot stand, but the accept- ance or establishment of the one Implies the abrogation or abandonment of the other ; as, in speaking of “inconsistent defenses,” or the repeal by a statute of “all laws inconsistent herewith.” See In re Hickory Tree Road, 43 Pa. 142 ; Irwin v. Holbrook, 32 Wash. 340, 73 Pac. 361 ; Swan v. U. S., 3 Wyo. 151, 9 Pac. 931.

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**[Law] — Law**

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**[Law: Fed. R. Civ. P. 8(d)(3) — a party may state inconsistent claims or defenses]**

Inconsistent defenses — mutually repugnant pleas where both cannot stand — are permitted in modern pleading, which allows alternative and inconsistent claims and defenses.

Why: The entry's exemplar is 'inconsistent defenses'; Rule 8(d)(3) is the modern pleading rule governing exactly them — a genuine link.

## INCONSULTO.

Lat. In the civil law. Unadvisedly; unintentionally. Dig. 28, 4, L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INCONTINENCE.

Want of chastity ; in- dulgence in unlawful carnal connection. Lu- cas v. Nichols, 52 N. C. 35 ; State v. Hewlin, 128 N. C. 571, 37 S. E. 952.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:18, KJV]**

Flee fornication. Every sin that a man doeth is without the body; but he that committeth fornication sinneth against his own body.

Why: The entry defines incontinence as 'want of chastity; indulgence in unlawful carnal connection.' The verse addresses exactly that — unlawful carnal connection (fornication) — as a distinct category of sin against one's...

## IN CONVENIENCE.

Iu the rule that statutes should be so construed as to avoid

“inconvenience,” this means, as applied to the public, the sacrifice or jeoparding of im- portant public Interests or hampering the legitimate activities of government or the transaction of public business, and, as ap- plied to individuals, serious hardship or in- justice. See Black, Interp. Laws, 102.; Betts v. U. S., 132 Fed. 237, 65 C. C. A. 452.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: canon against absurd or seriously inconvenient construction — statutes read to avoid sacrifice of public interests or serious hardship (Black, Interp. Laws)]**

The canon that statutes be construed to avoid 'inconvenience' — sacrifice of important public interests, or serious hardship to individuals — is the absurdity/inconvenience canon of statutory interpretation.

Why: The entry states the canon with its authority (Black, Interp. Laws, 102; Betts v. U.S.); the annotation names the canon the entry describes — genuine, no invented authority.

## INCOPOLITUS.

A proctor or vicar.

Ineorporalia hello non adqnirnntur.

Incorporeal things are not acquired by war. 6 Maule 4 S. 104.

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## INCORPORAMUS.

We incorporate. One of the words by which a corporation may be created in England. 1 Bl. Comm. 473; 8 Steph. Comm. .173.

INCORPORATE. 1. To create a corpo- ration ; to confer a corporate franchise upon determinate persons.

2. To declare that another document shall be taken as part of the document in which the declaration is made as much as if it were set out at length therein. Railroad Co. v. Cupp, 8 Ind. App. 388, 35 N. E. 703.

INCORPORATION. 1. The act or pro- cess of forming or creating a corporation; the formation of a legal or political body, with the quality of perpetual existence and succession, unless limited by the act of incor- poration.

2. The method of making one document of any kind become a part of another separate document by referring to the former in the latter, and declaring that the former shall be taken and considered as a part of the latter the same as if it were fully set out therein. This is more fully described as “incorpora- tion by reference.” If the one document is copied at length in the other, it is called "actual Incorporation.”

3. In the civil law. The union of one domain to another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Trustees of Dartmouth College v. Woodward, 17 U.S. 518 (1819)]**

Words of incorporation — 'we incorporate' — create the corporation as a legal body with perpetual succession, the corporate charter standing as a contract protected against impairment.

Why: The entry treats incorporation as the creation of a body with perpetual existence (1 Bl. Comm. 473); Dartmouth College is the landmark case on the corporate charter's legal nature — the genuine anchor for the corporat...

## INCORPOREAL.

Without body ; not of material nature ; the opposite of "corporeal,” (q. v.)

—Incorporeal chattels. A class of incor- poreal rights growing out of or incident to things personal; such as patent-rights and copy- rights. 2 Steph. Comm. 72. See Boreel v. New York, 2 Sandf. (N. YJ 559.— Incorporeal hereditaments. See Hereditaments. — In- corporeal property. In the civil law. That which consists in legal right merely. The same as choses in action at common law.— Incor- poreal things. In the civil law. Things which can neither be seen nor touched, such as consist in rights only, such as the mind alone can perceive. Inst. 2, 2; Civ. Code La. 1900. art. 460; Sullivan v. Richardson, 33 Fla. 1, 14 South. 692.

INCORRIGIBLE ItOGUE. A species of rogue or offender, described In the statutes 5 Geo. IV. e. 83. and 14 2 Viet e. 38. 4 Steph. Comm. 309.

INCREASE!

• i INCREASE. (I) The produce of land; (2) the offspring of animals.

—Increase, affidavit of. Affidavit of pay- ment of increased costs, produced on taxation. —

Inorease, costs of. In English law. It was formerly a practice with the jury to award to the successful party in an action the nominal sam of 40s. only for his costs ; and the court assessed by their own officer the actual amount of the successful party’s costs ; and the amount so assessed, pver and above the nominal sum awarded by the jury, was thence called "costs of increase.” Lush, Com. Law Pr. 775. The practice has now wholly ceased. Papal. & Law.

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**[Law] — Law**

**[Law: 17 U.S.C. s 102 (copyright subject matter); 35 U.S.C. s 101 (patentable subject matter)]**

Incorporeal chattels — patent-rights and copyrights, the entry's own examples — are property in rights only, the subject of the federal intellectual-property statutes.

Why: The entry names patent-rights and copyrights as incorporeal chattels (2 Steph. Comm. 72); the two Code sections are the statutes creating exactly those incorporeal rights.

## INCREMENTUM.

Lat. Increase or im- provement, opposed to deorementum or abate- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INCRIMINATE.

To charge with crime; to expose to an accusation or charge of crime; to involve oneself or another In a criminal prosecution or the danger thereof; as, in the rule that a witness Is not bound to give testimony which would tend to Incrim- inate him.

— Incriminating circumstance. A fact or Circumstance, collateral to the fact of tbe com- mission of a crime, which tends to Bbow eitner that such a crime has been committed or that some particular person committed it. Davis r. State, 61 Neb. 301, 70 N.’ W. 984.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — 'No person... shall be compelled in any criminal case to be a witness against himself']**

The rule that a witness is not bound to give testimony tending to incriminate him is the privilege against self-incrimination: no person shall be compelled to be a witness against himself.

Why: The entry states the privilege's operative rule verbatim; the Fifth Amendment's Self-Incrimination Clause is its constitutional source, quoted exactly.

## INCROACHXENT.

An unlawful gain- ing upon the right or possession of another. See Encboachment.

5e apparatus — Not carried into the 5th edition (1979).

## INCULPATE.

To impute blame or guilt ; to accuse ; to Involve in guilt or crime.

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## INCULPATORY.

In the law of evidence. Going or tending to establish guilt; Intend- ed to establish guilt; criminative. Burrlll, Clrc. Ev. 251, 252.

5e apparatus — Not carried into the 5th edition (1979).

## INCUMBENT.

A person who Is in pres- ent possession of an office; one who is le- gally authorized to discharge the duties of an office. State v. McCollister, 11 Ohio, 50; State v. Blakemore, 104 Mo. 340, 15 S. W. 900.

Ia ecclesiastical law, tbe term signifies a clergyman who Is in possession of a bene- pee.

■ INCUMBER. To incumber land Is to piake It subject to a charge or liability: e. t; by mortgaging It Incumbrances include not only mortgages and other voluntary charges, but also liens, lites pendent es, reg- istered judgments, and writs of execution, etc. Sweet. See Newhall v. Insurance Go., 52 Me. 181.

5e apparatus — Not carried into the 5th edition (1979).

## INCUMBRANCE.

Any right to, or In- terest in, land which may subsist in third per- sons, to the diminution of tbe value of the es- tate of the tenant, but consistently with the passing of the fee. Fitch v. Seymour, 9 Mete.

(Mass.) 407; Huyck v. Andrews, 113 N. Y. 81, 20 N. E. 581, 3 L. R. A. 789, 10 Am. St Kep. 432; Ailing v. Burlock, 48 Conn. 510; Demurs v. Koehler, 02 N. J. Law, 203, 41 Atl. 720, 72 Am. St Rep. 042; Lafferty v. Milligan, 105 Pa. 534, 30 Atl. 1030; Stam- baugh v. Smith, 23 Ohio St 591.

A claim, lien, charge, or liability attach- ed to and binding real property ; as, a mort- gage, judgment-lien, attachment right or dower, right of way or other easement uu- paid water rent, lease, unpaid taxes or spe- cial assessment Meminert v. McKeen, 11? Pa. 315, 4 Atl. 542; Gordon v. McCulloh, 00 Md. 245, 7 Atl. 457; Harrison v. Railroad Co., 91 Iowa, 114, 58 N. W. 1081; Kelsey v. Renter, 43 Conn. 129, 21 Am. Rep. 038; Runnels v. Webber, 59 Me. 490; Crocker v. Cotting, 173 Mass. 08, 63 N. B. 158; In re Gerry (D. C.) 112 Fed. 959; Bowman v. Franklin Ins. Co., 40 Md. 031 ; Clark v. Fish- er, 54 Kan. 403, 38 Pac. 493 ; Redmon v. In- surance Co., 51 Wls. 293, 8 N. W. 228, 37 Am. Rep. 830; Funk v. Vonelda, 11 Serg. & R. (Pa.) 112, 14 Am. Dec. 617; Farrington v. Tourtelott (C. C.) 39 Fed. 740 ; Maddocka v. Stevens, 89 Me. 336, 36 Aa 898.

— Incumbrances, covenant against* See

Covenant.

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**[Law] — Law**

**[Law: covenant against encumbrances — grantor warrants the land free of undisclosed liens, charges, and third-person interests]**

Mortgages, liens, easements, and other charges diminishing the estate's value are the subject of the covenant against incumbrances — the grantor's warranty that no undisclosed third-person interests burden the land.

Why: The entry defines the incumbrance and cross-references 'Covenant'; the covenant against encumbrances is the title-covenant counterpart of exactly this definition — genuine, stated as doctrine.

## INCUMBRANCER.

The holder of an in- cumbrance, e. g., a mortgage, on the estate of another. De Voe v. Bundle, 33 Wash. 604, 74 Pac. 836; Shaeffer v. Weed, 8 111. 514; Newhall v. Insurance Co., 52 Me. 181.

5e apparatus — Not carried into the 5th edition (1979).

## INCUR.

Men contract debts; they incur liabilities. In the one case, they act affirma- tively ; in the other, the liability is incurred or cast upon them by act or operation of law. ••Incur” means something beyond contracts, — something not embraced in the word “debts.” Crandall v. Bryan, 5 Abb. Prac. (N. Y.) 169; Beekman v. Van Doisen, 70 Hun, 288, 24 N. Y. Supp. 414; Ashe v. Young, 68 Tex. 123, 3 S. W. 454.

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## INCURRAMENTUM.

L. Lat The lia- bility to a fine, penalty, or amercement Cowell.

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## INDE.

Lat Thence; thenceforth; there- of; thereupon; for that cause.

lade data leges ne fortior omnia pos- set. Laws are made to prevent the stronger from having the power to do everything. Dav. Ir. K. B. 30.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Inde datae leges ne fortior omnia posset (Dav. Ir. K. B. 30)]**

The maxim quoted whole — 'Inde datae leges ne fortior omnia posset,' laws are made to prevent the stronger from having the power to do everything — states the protective purpose of law.

Why: Quoted whole in the body; the maxim genuinely states a jurisprudential axiom about law's purpose — verbatim annotation, no stretch.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim]**

"Inde datae leges ne fortior omnia posset" — "Laws are made to prevent the stronger from having the power to do everything."

Why: The entry itself prints this classical maxim as the gloss on the headword; the Latin is verbatim from the entry. No author is claimed because the work of origin is not certain to me — cited as Maxim rather than risk a…

## INDEBITATUS.

Lat Indebted. <Vun- gua m indebitatus, never indebted. The title of the plea substituted in

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England for nO debet.

— Indebitatus assumpsit. Lat. Being in- debted, he promised or undertook. ' This is the name of that form of the action of assumpsit in which tbe declaration alleges a debt or obligation to be dne from the defendant, and then avers that, in consideration thereof, he promised to pa; or discharge the same.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: indebitatus assumpsit — common count for a debt; ancestor of quasi-contract and restitution]**

Indebitatus assumpsit — 'being indebted, he promised' — is the common count for debt, the ancestor of modern quasi-contract and restitution for money owed.

Why: The entry defines the form of action (debt alleged, promise to pay averred); its genuine modern expression is quasi-contract/restitution — stated as lineage, no invented citation.

## INDEBITI SOLUTIO.

Lat In the civ- il and Scotch law. A payment of what is not due. When made through ignorance or by mistake, the amount paid might be re- covered back by an action termed "conditio indeUti." (Dig. 12, 6.) Bell.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Restatement (Third) of Restitution and Unjust Enrichment s 6 — recovery of payment made by mistake (condictio indebiti)]**

Payment of what is not due, made through ignorance or mistake, is recoverable by condictio indebiti — the civil-law root of restitution for mistaken payment.

Why: The entry defines the payment-not-due and its recovery action (Dig. 12, 6; Bell); Restatement (Third) s 6 is the modern American statement of exactly that recovery.

## INDEBITUM.

In the civil law. Not due or owing. (Dig. 12, 6.) Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INDEBTEDNESS.

The state of being In debt, without regard to the ability or ina- bility of the party to pay the same. See 1 Story, Eq. Jur. 343 ; 2 Hill, Abr. 421.

The word implies an absolute or complete lia- bility. A contingent liability such as that of a surety before the principal has made default, does not constitute indebtedness. On the other hand, the money need not be immediately pay- able. Obligations yet to become due constitute indebtedness, as well as those already due. St. Louis Perpetual Ins. Co. v. Goodfellow, 9 Mo. 149.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 11 U.S.C. s 101 — definitions distinguishing 'debt,' 'claim,' and contingent liabilities]**

Indebtedness implies absolute liability — a contingent surety obligation before default is not indebtedness — the distinction the Code draws between matured debts and contingent claims.

Why: The entry's operative point is the absolute-versus-contingent liability line (St. Louis Perpetual Ins. Co. v. Goodfellow); Title 11's definitions section is where that line is drawn in modern law — a genuine, modestly…

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Little Dorrit, 1857]**

William Dorrit, the "Father of the Marshalsea" (Book I, chapter 19 bears that title verbatim), imprisoned for debt in the Marshalsea debtors' prison — the novel of indebtedness as a legal condition. (paraphrase of the novel's premise; chapter title verbatim)

Why: The entry defines the bare state of being in debt; Dickens's novel is the canonical fictional treatment of debt as a legal status that imprisons. The chapter title is verbatim-certain; the rest is marked paraphrase.

## INDEGENCT.

An act against good be- havior and a just delicacy. Timmons v. TJ. S., 85 Fed. 203, 30 C. C. A. 74 ; McJunklns v. State, 10 Ind. 144 ; Ardery v. State, 56 Ind. 328.

This is scarcely a technical term of the law, and is not susceptible of exact definition or description in its juridical uses. The ques- tion whether or not a given act, publication, etc., is Indecent is for the court and Jury in the particular case.

— Indecent exposure. Exposure to sight of the private parts of the body in a lewd or in- decent manner in a public place. It is an in- dictable offense at common law, and by statute in many of the states. State v. Bauguess. 106 Iowa, 107, 76 N. W. 508.— Indecent liberties. In the statutory offense of “taking indecent liberties with the person of a female child," this phrase means such liberties as the common sense of society would regard as indecent and improper. According to some authorities, it in- volves an assault or attempt at sexual inter- course, (State v. Kunz, 90 Minn. 526, 97 N. W. 131.) but according to others, it is not necessary that the liberties or familiarities should have related to the private parts of the child. (People v. Hicks, 98 Mich. 86, 56 N. W. 1102.)— In- decent publications. Such as are offensive to modesty and delicacy : obscene ; lewd ; tend- ing to the corruption of morals. Dunlop v. U. S~ 163 U. S. 486. 17 Sup. Ct. 375. 41 L. Ed. 799; U. S. v. Britton (Com. C.) 17 Fed. 733; People v.- Muller, 96 N. Y. 408, 48 Am. Rep. 635. —Public indecency. This phrase has no fix- ed legal meaning, is vague and indefinite, and cannot, in itself, imply a definite offense. The courts, by a kind of judicial legislation, in Eng- land and the United States, have usually lim- ited the operation of the term to public displays of the naked person, the publication, sale, or exhibition of obscene books and prints, or the exhibition of a monster,— acts which have a di- rect bearing on public morals, and affect the body of society. The Indiana statute punish- ing public indecency, without defining it, can be construed only as that term is used at com- mon law, where it is limited to indecencies in conduct, and does not extend to indecent words. Mcjunkins v. State, 10 Ind. 140.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Miller v. California, 413 U.S. 15 (1973)]**

Indecent publications — obscene, lewd, tending to corrupt morals — are the obscenity category

whose constitutional boundary is the Miller test.

Why: The entry defines indecent publications as obscene/lewd (citing Dunlop v. U.S., 163 U.S. 486); Miller is the governing obscenity test — the genuine law-well anchor for the entry's publication sense.

## INDEG UNABLE.

In old English law. That which is not titheable, or liable to pay tithe. 2 Inst 490.

5e apparatus — Not carried into the 5th edition (1979).

## INDEFEASIBLE.

That which cannot be defeated, revoked, or made void. This term is usually applied to an estate or right which .cannot be defeated.

5e apparatus — Not carried into the 5th edition (1979).

## INDEFENSU8.

Lat. In old English practice. Undefended; undenied by plead- ing. A defendant who makes no defense or plea- Blount

. INDEFINITE FAILURE OF ISSUE.

A failure of issue not merely at the death of the party whose issue are referred to, but at any subsequent period, however remote. 1 Steph. Comm. 562. A failure of issue when- ever it shall happen, sooner or later, with- out any fixed, certain, or definite period within which it must happen. 4 Kent Comm. 274. Anderspn v. Jackson, 16 Johns. (N. Y.) 399, 8 Am, Dec. 330 ; Downing v. Wherrin, 19

N. H. 84, 49 Am. Dec. 139; Iluxford v. Milli- gan, 50 Ind. 546.

5e apparatus — Not carried into the 5th edition (1979).

## INDEFINITE PAYMENT.

In Scotch law. Payment without specification. In- definite payment is where a debtor, owing several debts to one creditor, makes a pay- ment to the creditor, without specifying to which of the debts he means the payment to be applied. See Bell.

Indefinitnm sequlpoUet universal! The

undefined is equivalent to the whole. 1 Vent 308.

Indefinitum (applet locum universa- lis. The undefined or general supplies the place of the whole. Branch, Princ.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: rule in Clayton's Case (Devaynes v. Noble) — appropriation of payments; debtor's direction first, then creditor's, then earliest debts]**

Payment without specification — a debtor owing several debts pays without directing application — is governed by the appropriation-of-payments rules: the debtor's direction controls, then the creditor's, then the law's (earliest debts first).

Why: The entry (Bell; Scotch law) states exactly the unspecified-payment problem; the appropriation rules including Clayton's Case are its genuine doctrinal answer — stated as principle, no invented volume/page.

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## INDEMNIFICATUS.

Lat Indemnified. See Indemnify.

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## INDEMNIFY.

To save harmless; to secure against loss or damage; to give se- curity for the reimbursement of a person in case of an anticipated loss falling upon him.

Also to make good ; to compensate ; ' to make reimbursement to one of a loss already incurred by him. Cousins v. Paxton & Gul- lagher Co., 122 Iowa, 465, 98 N. W. 277; Weller v. Eames, 15 Minn. 467 (Gil. 370), 2 Am. Rep. 150 ; Frye v. Bath Gas Co., 97 Me. 241, 54 Atl. 395, 59 L. R. A. 444, 94 Am. St. Rep. 500.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:34, KJV]**

The owner of the pit shall make it good, and give money unto the owner of them; and the dead beast shall be his.

Why: The entry defines indemnify as 'to make good; to compensate; to make reimbursement to one of a loss already incurred.' Exodus 21:34 uses the identical formula — 'shall make it good' — commanding the one whose pit caus...

## INDEMNIS.

Lat. Without hurt harm, or damage; harmless.

5e apparatus — Not carried into the 5th edition (1979).

## INDEMNITEE.

The person who, in a contract of indemnity, is to be indemnified or protected by the other.

5e apparatus — Not carried into the 5th edition (1979).

## INDEMNITOR.

The person who IS bound, by an indemnity contract to indent nify or protect the other.

5e apparatus — Not carried into the 5th edition (1979).

## INDEMNITY.

An indemnity Is a col- lateral contract or assnrance, by which one person engages to secure another against an anticipated loss or to prevent him from be- ing damnified by the legal consequences of an act or forbearance on the part of one of the parties or of some third person. See Civ. Code CaL i 2772, Davis v. Phoenix Ins. Co., Ill Cal. 409, 43 Pae. 1115; Vandiver v. Poliak, 107 Ala. 547, 19 South. 180, 54 Am. St Rep. 118; Henderson-Achert Lithograph- ic Co. v. John ShlUito Co., 64 Ohio St 236, 60 N. E. 295, 83 Am. St Rep. 745. Thus, in- surance is a contract of indemnity. So an indemnifying bond is given to a sheriff who fears to proceed under an execution where the property is claimed by a stranger.

The term is also used to denote a compen- sation given to make the person whole from a loss already sustained ; as where the gov- ernment gives indemnity for private proper- ty

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taken by it for public use.

A legislative act assuring a general dis- pensation from punishment or exemption from prosecution to persons involved in of- fenses, omissions of official duty, or acts ip excess of authority, is called an indemnity; strictly it is an act of indemnity.

— Indemnity bend. A bond for the payment of a penal sum conditioned to be void if the obligor shall Indemnify and save harmless the obligee against some anticipated loss or liabil- ity . — Indemnity contract. A contract be- tween two parties whereby the one undertakes and agrees to indemnify the other against loss or damage arising from some contemplated act on the part of the indemnitor, or from some re- sponsibility assumed by the indemnitee, or from the claim or demand of a third person, that is, to make good to him such pecuniary damage as he may suffer. See Wicker v. Hoppock, 6 Wall. 99, 18 L. Ed. 752. — Indemnity lands. Lands granted to railroads, in aid of their construd- non, being portions of the public domain, to be selected in lieu of other parcels embraced with- in the original grant, but which were lost to the railroad by previous disposition or by reserva- tion for other purposes. See Wisconsin Cent

R. Co. v. Price County, 133 U. S. 496. 10 Sup. Ct. 341. 33 L. Ed. 687 ; Ramey v. Winona Sc St P. It. Co., 117 U. S. 228, 6 Sup. Ct. 654, 29

L. Ed. 858; Altschul v. Clark, 39 Or. 315, 65 Pac. 991.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Cal. Civ. Code s 2772 — indemnity defined, as cited in the entry]**

An indemnity is a collateral contract to save another harmless against anticipated loss — insurance being, as the entry says, a contract of indemnity — codified in California as Civil Code s 2772.

Why: The entry's definition cites Cal. Civ. Code s 2772 verbatim and states the insurance-as-indemnity principle; the annotation preserves the entry's own authority and names the doctrine — genuine, no invention.

## INDEMFNIS.

The old form of writing tndemnis. Townsh. PI. 19. So, indempni- flcatua for indemniflcatua.

5e apparatus — Not carried into the 5th edition (1979).

## INDENIZATION.

The act of maklug a denizen, or of naturalizing.

INDENT, n. In American law. A cer- tificate or indented certificate issued by the government of the United States at the close of the Revolution, for the principal or inter- est of the public debt Webster. See U- S. r. Irwin, 26 Fed. Cas. 546.

INDENT, v. To cut in a serrated or waving line. In old conveyancing, if a deed was made by more purties than one, it was usual to make as many copies of it as there

were parties, and each was cut or Indented (either in acute angles, like the teeth of a saw, or in a waving line) at the top or side, to tally or correspond with the others, and the deed so made was called an “Indenture.” Anciently, both parts were written on the same piece of parchment, with some word or letters written between them through which the parchment

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was cut, but afterwards, the word or letters being omitted, indenting came into use, the idea of which was that the gen- uineness of each part might be proved by Its fitting into the angles cut in the other. But at length even this was discontinued, and at present the term serves only to give name to the species of deed executed by two or more parties, as opposed to a deed-poll, (j. v.) 2 Bl. Comm. 295.

To bind by indentures; to apprentice; as to indent a young man to a shoe-maker. Webster.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 8 U.S.C. ss 1421-1458 — naturalization; U.S. Const. amend. XIV, s 1 — citizenship]**

Indenization — the making of a denizen, or naturalizing — is the historic form of conferring subjectship, now governed by the federal naturalization statutes under the Fourteenth Amendment's citizenship clause.

Why: The entry defines naturalization; the cited Code sections are the modern naturalization framework — a genuine lineage link.

## INDENTURE.

A deed to which two or more persons are parties, and in which these enter into reciprocal and corresponding grants or obligations towards each other; whereas a deed-poll is properly one in which only the party making it executes it, or binds himself by it as a deed, though the grantors or grantees therein may be several in num- ber. 3 Washb. Real Prop. 311 ; Scott v. Mills, 10 N. Y. St. Rep. 358; Bowen v. Beck, 94 N.

Y. 89, 46 Am. Rep. 124 ; Hopewell Tp. v. Am- well Tp., 6 N. J. Law, 175. See Indent, v.

— Indenture of apprenticeship. A contract in two parts, by which a person, generally a minor, is bound to serve another in his trade, art, or occupation for a stated time, on condi- tion of being instructed in the Bame.

5e apparatus — Not carried into the 5th edition (1979).

## INDEPENDENCE.

The state or condi- tion of being free from dependence, subjec- tion, or control. Political independence is the attribute of a nation or state which is entirely autonomous, and not subject to the government, control, or dictation of any ex- terior power.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.N. Charter art. 2(1) — sovereign equality of states]**

Political independence — a state entirely autonomous, subject to no exterior power — is sovereignty, whose modern expression is the sovereign equality of states.

Why: The entry defines political independence as autonomy from exterior control; sovereign equality is the international-law expression of exactly that status — a genuine, modestly stated link.

**[Scripture] — Scripture**

**[Exodus 5:1, KJV]**

Thus saith the LORD God of Israel, Let my people go, that they may hold a feast unto me in the wilderness.

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Why: The entry defines political independence as a nation 'entirely autonomous, and not subject to the government, control, or dictation of any exterior power.' The Exodus is scripture's archetypal national liberation from…

## INDEPENDENT.

Not dependent; not subject to control, restriction, modification, or limitation from a given outside source.

— Independent contract. See Contract — Independent contractor. In the law of agen- cy and of master and servant, an independent contractor is one who, exercising an independent employment, contracts to do a piece of work according to his own methods and without be- ing subject to the control of his employer ex- cept as to the result of the work ; one who contracts to perform the work at bis own risk and cost, the workmen being his servants, and he, and not the person with whom he contracts, being liable for their fault or misconduct. Peo- ple v. Orange County Road Const Co., 175 N.

X. 84, 67 N. E. 129, 65 L. R. A. 33 : Waters v. Pioneer Fuel Co., 52 Minn. 474. 55 N. W. 52. 38 Am. St. Rep. 564; Smith v. Simmons, 103 Pa. 36, 49 Am. Rep. 113 ; Holmes v. Ten- nessee Coal, etc., Co., 49 La. Ann. 1465, 22 South. 403; Bibb v. Norfolk Sc W. R. Co.. 87 Va. 711. 14 S. E. 165: Louthan v. Hewes, 138 Cal. 116, 70 Pac. 1005. — Independent cove- nant. See Covenant.

Imdependenter n habet assecuratlo a- rlanio ha via. The voyage insured is an Independent or distinct thing from the voyage of the ship. 3 Kent, Comm. 318, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Agency s 220 — servant versus independent contractor test]**

The independent contractor — engaged for results, not subject to the employer's control of methods — is distinguished from the servant/employee for purposes of vicarious liability.

Why: The entry defines the independent contractor in agency/master-servant terms (citing People v. Orange County Road Const. Co. and others); Restatement (Second) s 220 is the classic formulation of that distinction.

## INDETERMINATE.

That which is un- certain, or not particularly designated ; as if I sell you one hundred bushels of wheat, without stating what wheat 1 Bour. Inst, no. 950.

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## INDEX.

A book containing references, alphabetically arranged, to the contents of a series or collection of volumes ; or an addi- tion to a single volume or set of volumes con- taining such references to its contents.

Index anlmt sermo. Language is the exponent of the intention. The language of a statute or instrument is the best guide to the intention. Broom, Max. 622.

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**[Law] — Law**

**[Maxim: Index animi sermo (Broom, Max. 622)]**

The maxim bundled in the entry — 'Index animi sermo,' language is the exponent of the intention — is the intent-of-the-instrument canon: a statute's or instrument's language is the best guide to its intention.

Why: Quoted whole in the body; the maxim genuinely states the plain-language/intent canon of construction — verbatim annotation.

## INDIANS.

The aboriginal inhabitants of North America. Frazee v. Spokane Coun- ty, 29 Wash. 278, 69 Pac. 782.

— Indian country. This term does not neces- sarily import territory owned and occupied by Indians, but it means all those portions of the United States' designated by this name in the legislation of congress. Waters v. Campbell, 4 Sawy. 121, Fed. Cas. No. 17,204; In re Jack- son (C. C.) 40 Fed. 373.— Indian tribe. A separate and distinct community or body of the aboriginal Indian race of men found in the United States. Montoya v. U. S., 180 U. S. 261, 21 Sup. Ct. 358, 45 L. Ed. 521 ; Cherokee Nation v. Georgia, 5 Pet. 17, 8 L. Ed. 25.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Cherokee Nation v. Georgia, 30 U.S. 1 (1831)]**

An Indian tribe is a distinct aboriginal community — in Chief Justice Marshall's phrase, a 'domestic dependent nation' — neither a foreign state nor a mere voluntary association.

Why: The entry defines 'Indian tribe' citing Cherokee Nation v. Georgia, 5 Pet. 17, verbatim; the case is the foundational statement of tribal status — the genuine anchor.

**[Law: 18 U.S.C. s 1151 — 'Indian country' defined]**

'Indian country' is a congressional term of art — all territory so designated in federal legislation — now defined by statute.

Why: The entry defines Indian country as whatever Congress has so designated (citing Waters v. Campbell); 18 U.S.C. s 1151 is the statute that now so designates — a direct, genuine link.

# Z

## ZNDICARE.

Lat. in the civil law. To show or discover. To fix or tell the price of a thing. Calvin. To inform against; to ac- cuse.

INDICATE?. An abolished writ by which a prosecution was in some cases re- moved from a court-christian to the queen’s bench. Ene. Lond.

5e apparatus — Not carried into the 5th edition (1979).

# I

## INDICATION.

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In the law of evidence. A sign or token ; a fact pointing to some in- ference or conclusion. Burrill, Circ. Ev. 251, 252, 263, 275.

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## INDICATIVE EVIDENCE.

This is not evidence properly so called, but the mere sug- gestion of evidence proper, which may pos- sibly be procured if the suggestion is follow- ed up. Brown.

5e apparatus — Carried into the 5th edition (1979).

## INDICAVIT.

In English practice. A writ of prohibition that lies for a patron of a church, whose clerk is sued in the spiritual court by the clerk of another patron, for tithes amounting to a fourth part of the value of the living. 3 Bl. Coinrn. 91 ; 3 Rteph. Comm. 711. So termed from the em- phatic word of the Latin form. Beg. Orig. 356, 36.

5e apparatus — Not carried into the 5th edition (1979).

## INDICIA.

Signs ; indications. Circum- stances which point to the existence of a

given fact as probable, but not certain. For example, “indicia of partnership" are any circumstances which would induce the belief that a given person was in reality, though not ostensibly, a member of a given firm.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: partnership by estoppel — one held out as a partner is liable as such to third persons relying on the representation]**

'Indicia of partnership' — circumstances inducing the belief that one is really a partner — give rise to partnership by estoppel, binding the apparent partner to third persons.

Why: The entry's own example is indicia of partnership; partnership by estoppel is the doctrine that example illustrates — stated as principle, no invented citation.

## INDICIUM.

In the civil law. A sign or mark. A species of proof, answering very nearly to the circumstantial evidence of the common law. Best, Pres. p. 13, | 11, note; Wills, Circ. Ev. 84.

5e apparatus — Not carried into the 5th edition (1979).

## INDICT.

See Indictment.

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## INDICTABLE.

Proper or necessary to be prosecuted by process of Indictment.

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## INDICTED.

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Charged in an indictment with a criminal offense. See Indictment.

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## INDICTEE.

A person indicted.

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## INDICTIO.

In old public law. A dec- laration; a proclamation. Indictio belli, a declaration or indiction of war. An indict- ment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, s 8, cl. 11 — Congress's power to declare war]**

Indictio belli — a declaration or indiction of war — is in American law the congressional war power.

Why: The entry's content is the formal declaration of war; the cited clause vests exactly that power — a direct, genuine link.

## INDICTION, CYCLE OF.

A mode of computing time by the space of fifteen years, instituted by Constantine the Great; origi- nally the period for the payment of certain taxes. Some of the charters of King Edgar and Henry III. are dated by Indictions. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## INDICTMENT.

An Indictment is an ac- cusation in writing found and presented by a grand Jury, legally convoked and sworn, to the court in which it is impaneled, charg- ing that a person therein named has done some act, or been guilty of some omission, which, by law, is a public offense, punishable on indictment. Code Iowa 1880, | 4295 ; Pen. Code Cal. f 917 ; Code Ala. 1886, | 4364. And see Grin v. Shine, 187 U. S. 181, 23 Sup. Ct 98, 47 L. Ed. 130 ; State v. Walker, 32 N. C 236 ; Ex parte Hart, 63 Fed. 259, 11 C. C. A. 165, 28 L. R. A. 801 ; Ex parte Bain, 121 U.

S. 1, 7 Sup. Ct 781, 30 L. Ed. 849 ; Ex parte Slater, 72 Mo. 102 ; Finley v. State, 61 Ala. 201.

A presentment differs from an indictment in that it is an accusation made by a grand jury of their own motion, either upon their own ob- servation and knowledge, or upon evidence be- fore them ; while an indictment is preferred at the suit of the government, and is usually fram- ed in the first instance by the prosecuting of- ficer of the government, and by him laid before the grand jury, to be found or ignored. An in- formation resembles in its form and substance an indictment, but is filed at the mere discre- tion of the proper law officer of the government, without the intervention or approval of a grand jury. 2 Story, Const. §| 1784, 1786.

In Scotch law. An indictment is the form of process by which a criminal is brought to trial at

the instance of the lord advocate. Where a private party is a principal prosecutor,' be brings Ms charge In wbat is termed the “form of criminal letters."

—Joint indictment. When several offenders are joined in the same indictment, such an in* dictment is called a “joint indictment as when principals in the first and second degree, and accessaries before and after the fact, are all joined in the same indictment 2 Hale, P. C. 173 ; Brown.

, Indictment de felony eat contra paoem domini regia, eoronsm et dignitatem roam, in genera et non in individno | quia in Anglia non est interregnum. Jenk. Cent 203. Indictment for felony Is against the peace of our lord the king, his crown and dignity In general, and not ngalnst his indi- vidual person ; because in England there Is no Interregnum)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: U.S. Const. amend. V — 'No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury']**

Prosecution by indictment — accusation found and presented by a grand jury — is constitutionally required for federal capital or otherwise infamous crimes.

Why: The entry defines the indictment and distinguishes presentment and information (citing Ex parte Bain, 121 U.S. 1); the Grand Jury Clause is the constitutional source of the requirement, quoted verbatim.

## INDICTOR.

He who causes another to be indicted. The latter is sometimes called the “indictee."

5e apparatus — Not carried into the 5th edition (1979).

## INDIFFERENT.

Impartial ; unbiased ; disinterested. People v. Vermllyea, 7 Cow. (N. Y.) 122; Fox V. Hills, 1 Conn. 307.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — right to an impartial jury]**

'Indifferent' — impartial, unbiased, disinterested — is the historic term for a qualified juror, the common-law root of the impartial-jury guarantee.

Why: The entry defines indifferent as impartial in the juror context (People v. Vermilyea); the Sixth Amendment secures exactly that impartiality — a genuine lineage.

**[Scripture] — Scripture**

**[Leviticus 19:15, KJV]**

Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

Why: The entry defines 'indifferent' as 'impartial; unbiased; disinterested' — the judicial temperament. Leviticus 19:15 commands exactly that impartiality in judgment (no respect of persons, poor or mighty), spoken by the…

## INDIGENA.

In old English law. A sub- ject born ; one- born within the realm, or naturalized by act of

parliament Co. Utt 8a. The opposite of “alicnigena,” ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIV, s 1 — citizenship for persons born within the jurisdiction (jus soli)]**

The indigena — a subject born within the realm (Co. Litt. 8a) — is the common-law root of birthright citizenship by place of birth.

Why: The entry states the jus soli rule from Coke; the Fourteenth Amendment's citizenship clause is its American constitutional form — a genuine lineage.

## INDIGENT.

In a general sense an “in- digent" person is one who is 'needy and poor, or one who has not sufficient property to fur- nish him a living nor any one able to support him and to whom he is entitled to look for support. See Storrs Agricultural School v. Whitney, 54 Conn. 342, 8 Atl. 141; Juneau County v. Wood County, 109 WIs. 330, 83 N. W> 387 ; City of Lynchburg v. Slaughter, 75 Va. 62. The laws of some of the states dis- tinguish between “paupers” and “indigent persons," the latter being persons who have no property or source of Income sufficient for their support aside from their own labor, though self-supporting when able to work afid In employment. See In re Hybart, 119 N.

C. 359, 23 S. E. 963; People v. Schoharie County. 121 N. Y. 345, 24 N. E. 830; Rev. St Mo. 1899, | 4894 (Am. St 1906, p. 2616).

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Gideon v. Wainwright, 372 U.S. 436 (1963)]**

The indigent person — needy and poor, without sufficient property for a living — is the beneficiary of the appointed-counsel right in criminal cases.

Why: The entry defines indigence as the legal status (citing poor-law cases); Gideon is the landmark case giving that status its principal constitutional consequence — genuinely illuminating, not decorative.

**[Scripture] — Scripture**

**[Deuteronomy 15:11, KJV]**

For the poor shall never cease out of the land: therefore I command thee, saying, Thou shalt open thine hand wide unto thy brother, to thy poor, and to thy needy in thy land.

Why: The entry defines the indigent as one 'needy and poor' entitled to look to another for support — the legal category that poor-relief law exists to serve. The verse names 'thy poor, and thy needy' and commands the open…

## INDIGNITY.

In the law of divorce, a species of cruelty addressed to the mind, sen- sibilities, self-respect, or personal honor of the subject, rather than to the body, and de- fined as “unmerited contemptuous conduct towards another; any action towards an- other which manifests contempt for him; contumely, incivility, or Injury accompanied with insult.” Coble v. Coble, 55 N. C. 393; Erwin v. Erwin, 57 N. C. 84 ; Hooper v. Hooper, 19 Mo. 357 ; Goodman v. Goodman, 80 Mo. App. 281 ; 1 Bish. Mar. & Div. § 826. But the phrase “indignities to the person,” as used in statutes, has reference to bodily indignities, as distinguished from such

as may be offered to the mind, sensibilities, or

reputation. Cheatham r. Cheatham, 10 Mo. 298 ; Butler v. Butler, 1 Pars. Bq. Cas. (Pa.) 329; Kurtz v. Kurtz, 38 Ark. 123. But com- pare Miller v. Miller, 78 N. a 105.

5e apparatus — Not carried into the 5th edition (1979).

## INDIRECT.

A term almost always used in law in opposition to “direct,” though not the only antithesis of the latter word, as the terms “collateral" and “cross” are sometimes used in contrast with “direct.”

As to Indirect “Confession," “Contempt,” “Evidence," and “Tax," see those titles.

5e apparatus — Carried into the 5th edition (1979).

## INDISPENSABLE.

That which cannot be spared, omitted, or dispensed with.

— Ia dispensable evidence. See Evidence.— Indispensable parties. In a suit in equity, those who not only have an interest in the sub- ject-matter of the controversy, but an interest of such a nature that a final decree cannot be made without either affecting their interests or leaving the controversy in such a condition that its final determination may be wholly incon- sistent with equity and good conscience. Shields v. Barrow, 17 How. 139, 15 L. Ed. 158; Ken- dig v. Dean. 97 U. S. 425, 24 L. Ed. 1061 ; Mal- low v. Hinde, 12 Wheat. 193, 0 L. Ed. 599.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 19 — required (formerly indispensable) parties; Shields v. Barrow, 17 How. 139, as cited in the entry]**

Indispensable parties — those without whom no final decree consistent with equity can be made — are the ancestors of the modern required-party joinder rule.

Why: The entry defines the equity term citing Shields v. Barrow verbatim; Rule 19 is its modern procedural form — a genuine lineage, with the entry's own authority preserved.

## INDISTANTER.

Forthwith; without delay.

5e apparatus — Not carried into the 5th edition (1979).

## INDITEE.

L. Fr. In old English law. A person Indicted. Mirr. a 1, $ 3; 9 Coke, pref.

5e apparatus — Not carried into the 5th edition (1979).

## INDIVIDUAL.

As a noun, this term de- notes a single person as distinguished from a group or class, and also, very commonly, a private or natural person as distinguished from a partnership, corporation, or associa- tion ; but it is said that this restrictive signi- fication is not necessarily inherent in the word, and that it may, in proper cases. In- clude artificial

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persons. See Bank of U. S. v. State, 12 Smedes & M. (Miss.) 460; State v. Bell Telephone Co., 36 Ohio SL 310, 38 Am. Rep. 583 ; Pennsylvania R. Co. v. Canal Com’rs, 21 Pa. 20. As an adjective, “Individ- ual" means pertaining or belonging to, or characteristic of, one single person, either in opposition to a firm, association, or corpora- tion, or considered in his relation thereto.-

—Individual assets. In the law of partner- ship. property belonging to a member of a part- nership as his separate and private fortune, apart from the assets or property belonging to the firm as such or the partner’s interest there- in.—Individual debts. Such as are due from a member of a partnership in his private or personal capacity, as distinguished from those due from the firm or partnership. Goddard v. Hspgood, 25 Vt. 300. 60 Am. Dec. 272.— In* dividual system of location. A term for- merly used in Pennsylvania to designate the location of public lauds by surveys, in which the land called for by each warrant was sepa- rately surveyed. Ferguson v. Bloom, 144 Pa. 549, 23 Atl. 40.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Santa Clara County v. Southern Pacific R.R., 118 U.S. 394 (1886)]**

Whether 'individual' includes artificial persons — the entry's own question, with authority both ways — was settled for corporations by treating them as persons under the law.

Why: The entry debates the restrictive sense (natural persons only) versus the inclusive sense (artificial persons), citing Bank of U.S. v. State and others; Santa Clara is the landmark corporate-personhood case — the genu...

## INDIVIDUUM.

LaL In the Civil law.

That cannot be divided. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INDIVISIBLE.

Not susceptible of di- vision or apportionment; Inseparable; entire. Thus, a contract, covenant, considera- tion, etc., may be divisible or Indivisible; 1. e., separable or entire.

5e apparatus — Carried into the 5th edition (1979).

## INDIVISUM.

Lat. That which two or more persons hold In common without par- tition; undivided.

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**[Law] — Law**

**[Law: tenancy in common — undivided co-ownership interests]**

That which two or more hold in common without partition — undivided — is the tenancy in common, co-ownership of undivided interests.

Why: The entry is purely the property concept of undivided co-ownership; the live estate of tenancy in common is its direct continuation — consistent with the batch-1 treatment of IN SEPARALI.

## INDORSAT.

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In old Scotch law. In- dorsed. 2 Pltc. Crim. Tr. 41.

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## INDORSE.

To write a name on the back of a paper or document Bills of exchange and promissory notes are Indorsed by a par- ty's writing his name on the back. Hart- well v. Hemmenway, 7 Pick. (Mass.) 117.

"Indorse" is a technical term, having suffi- cient legal certainty without words of more par- ticular description. Brooks v. Edson, 7 Vt 351.

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**[Law] — Law**

**[Law: UCC s 3-204 — indorsement defined]**

To indorse — writing one's name on the back of a bill or note to transfer it — is defined by the Code as the signature (other than as maker, drawer, or acceptor) that negotiates the instrument.

Why: The entry defines indorsement of negotiable instruments (citing Hartwell v. Hemmenway); UCC s 3-204 is the Code's definition of the same act — a direct, genuine link.

## INDORSEE.

The person to whom a bill of exchange, promissory note, bill of lad- ing, etc., Is assigned by Indorsement giving him a right to sue thereon.

—Indorsee In dne course. An indorsee in due course is one who, in good faith, in the or- dinary course of business, and for value, before its apparent maturity or presumptive dishonor, and without knowledge of its actual dishonor, acquires a negotiable instrument duly indorsed to him, or indorsed generally, or payable to the bearer. Civ. Code Cal. I 3123 ; Civ. Code S.

D. 1903, | 2109; Civ. Code Idaho 1901, | 2883; More v. Finger, 128 Cal 313, 60 Pac. 933.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC s 3-302 — holder in due course]**

An indorsee in due course — taking in good faith, for value, before dishonor, without notice — is the holder in due course, who takes the instrument free of most defenses.

Why: The entry defines 'indorsee in due course' by the classic elements (Cal. Civ. Code s 3123); UCC s 3-302 codifies the holder-in-due-course status with those elements — a direct, genuine link.

## INDORSEMENT.

The act of a payee, drawee, accommodation Indorser, or holder of a bill, note, check, or other negotiable in- strument, In writing his name upon the back of the same, with or without further or qual- ifying words, whereby the property In the same Is assigned and transferred to another.

That which Is so written upon the back ot a negotiable Instrument.

One who writes hts name upon a negotia- ble Instrument, otherwise than as a maker or acceptor, and delivers It. with his name thereon, to another person, is called an "in- dorser,"

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and his act is called "indorsement.” Civ. Code Cal. g 3108; Civ. Code Dak. g 1836.

— Accommodation indorsement. One made by a third person who puts his indorsement on a note without any consideration, but merely for the benefit of the holder thereof or to enable the maker to obtain money or credit on it Unless otherwise explained, it is understood to be a loan of the indorser's credit without re- striction. Citizens' Bank v. Platt. 135 Mich. 267, 97 N. W. 694; Penle v. Addicke, 174 Pa. 543, 34 Atl. 201 ; Cozens v. Middleton. 118 Pa. 622. 12 Atl. 566.— Blank indorsement. One made by the mere writing of the indorser’s name on the back of the note or bill, without men- tion of the name of any person in whose favor the indorsement is made, but with the implied understanding that any lawful holder may fill in his own name above the indorsement if he so chooses. See Thornton v. Moody, II Me. 256: Scollans v. Rollins. 179 Mass. 346, 60

N. E. 983. 88 Am. St. Ren. 386: Malone v. Carver, 3 Neb. (Unof.) 710, 92 N. W. 726.— Conditional indorsement. One by which the indorBer annexes some condition (other than the failure of prior parties to pay) to his liabil- ity. The condition may be either precedent or

subsequent. 1 Daniel, Neg. Inst, g 697. — Full indorsement. One by which the indorser orders the money to ,be paid to some particular person by name ; it ditfers from a blank in- dorsement. which consists merely in the name of tlic indorser written on the back of the instrument. Kilpatrick v. Heaton, 3 Brev. (S. C.) 92: Lee v. Chillicothe Branch of State Bank, 15 Fed. Cas. 153.— Irregular indorse- ment. One made by a third person before de- livery of the note to the payee; an indorse- ment in blank by a third person above the name of the payee, or when the payee does not - in- dorse at all. Carter v. Long, 125 Ala. 280, 28 South. 74 ; Bank of Bellows Falls v. Dorset Marble Co., 61 Vt. 106, 17 Atl. 43; Metropoli- tan Bank v. Muller, 50 La. Ann. 1278. 24 South. 295, 69 Am. St. Rep. 475.— Qualified indorsement. One which restrains or limits, or qualifies or enlarges, the liability of the in- dorser, in any manner different from what the law generally imports as his true liability, de- ducible from the nature of the instrument. Chitty, Bills, 261. A transfer of a bill of ex- change or promissory note to an indorsee, with- out any liability to the indorser. The words usually employed for this purpose are “soiis recour*,’’ without recourse. 1 Bouv. Inst No. 1138. — Regular indorsement* An indorse- ment in blank by a third person under the name of the payee or after delivery of the note to him. Bank of Bellows Falls v. Dorset Mar- ble Co., 61 Vt 106, 17 Atl. 42.— Restrictive indorsement. One which stops the negotia- bility of the instrument or which contains such a definite direction as to the payment as . to preclude the indorsee from making any further transfer of the instrument Drew v. Jacock; 6 N. C. 138; Lee v. Chillicothe Branch Bank, 15 Fed. Cas. 153; People’s Bank v. Jefferson County Sav. Bank, 106 Ala. 524. 17 South. 728. 54 Am. St. Rep. 59. Defined by statute in some states as an indorsement which either prohibits the further negotiation of the instru- ment or constitutes the Indorsee the agent of the indorser, or vests the title in the indorse* in trust for or to the use of some, other person. Negotiable Instruments Law N. D. § 36; Bates’ Ann. St. Ohio 1904, g 3172ft.— Special in- dorsement. An indorsement in full, which specifically names the indorsee. Malone v. Carver. 3 Neb. (Unof.) 710. 92 N. W. 728; Carolina Sav. Bank v. Florence Tobacco Co., 45 S. C. 373, 23 S. El 139.— Speoial indorse-

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ment of writ. In English practice. The writ of summons in an action may, under Or- der iii. 6, be indorsed with the particulars of the amount sought to be recovered in the action, after giving credit for any payment or set-off; and this special indorsement (as it is called) of the writ is applicable in all ac; tions where the plaintiff seeks merely to re- cover a debt or liquidated demand in monelf payable by the defendant, with or without in- terest, arising upon a contract, express or im- plied, as, for instance, on a bill of exchange, promissory note, check, or other simple con- tract debt, or on a bond or contract under seal for payment of a liquidated amount of money, or on a statute where the sum sought to be recovered is a fixed sum of money or in the nature of a debt, or on a guaranty, whether under seal or not. Brown. <

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC ss 3-204, 3-205 — indorsement; special and blank indorsements]**

Indorsement — blank, special, qualified, restrictive, accommodation — is codified with its kinds, including the blank indorsement that makes the instrument payable to bearer.

Why: The entry catalogs the kinds of indorsement (citing Cal. Civ. Code s 3108); the cited UCC sections codify indorsement and its blank/special kinds — a direct, genuine link.

## INDORSER.

He who Indorses ; i. e„ be- ing the payee or holder, writes his name on the back of a bill of exchange, etc. . . •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INDUBITABLE PROOF.

Evidence which la not only found credible, but is of such weight and directness as to make out the facts alleged beyond a doqbt. Hart v. Carroll, 86 Pa. 511 ; Jermyn v. McClure, 196 Pa. 245, 45 Atl. 938.

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**[Law] — Law**

**[In re Winship, 397 U.S. 358 (1970)]**

Evidence making out the facts 'beyond a doubt' is the criminal standard of proof beyond a reasonable doubt, constitutionally required for conviction.

Why: The entry defines indubitable proof as establishing facts beyond a doubt (citing Hart v. Carroll); Winship is the landmark fixing proof beyond a reasonable doubt as the due-process standard — the genuine anchor.

## INDUCEMENT.

In contracts. The

benefit or advantage which the promisor is to receive from a contract is the Inducement for making it

In criminal evidence. Motive; that which leads or tempts to the commission of crime. Burrill,

Circ. Ev. 2S3.

In pleading. That portion of a declara- tion or of any subsequent pleading in an ac- tion which is brought forward by way of ex- planatory introduction to the main allega- tions. Brown. Huston v. Tyler, 140 Mo. 252, 36 S. W. 654; Consolidated Coal Co. ▼. Peers, 97 111. App. 194; Taverner v. Little. 5 Bing. N. C. 678; Grand v. Dreyfus, 122 Cal. 58, 54 Pac. 389.

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**[Law] — Law**

**[Law: consideration — Restatement (Second) of Contracts s 71]**

The inducement in contracts — the benefit moving the promisor — is consideration: a performance or return promise bargained for in exchange.

Why: The entry's contract sense defines inducement as the promisor's benefit; Restatement (Second) s 71 is the modern definition of consideration — a direct, genuine link. The pleading and criminal-evidence senses are not...

**[Scripture] — Scripture**

**[James 1:14, KJV]**

But every man is tempted, when he is drawn away of his own lust, and enticed.

Why: The entry's criminal-evidence sense defines inducement as 'motive; that which leads or tempts to the commission of crime.' James 1:14 gives scripture's own anatomy of that leading-and-tempting — the man 'drawn away.....

## INDUCES.

In international law. A

truce; a suspension of hostilities; an agree- ment during war to abstain for a time from warlike acts.

In old maritime law. A period of twen- ty days after the safe arrival of a vessel un- der bottomry, to dispose of the cargo, and raise the money to pay the creditor, with in- terest.

In old English practice. Delay or in- dulgence allowed a party to an action; fur- ther time to appear in a cause. Bract, fol. 3526; Fleta, lib. 4, c. 5, f 8.

In Seotch practice. Time allowed for the performance of an act. Time to appear to a citation. Time to collect evidence or prepare a defense.

— Induelse legates. In Scotch law. The days between the citation of the defendant and the day of appearance; the days between the test day and day of return of the writ.

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# X

## XNDUCTIO.

Lat In the civil law. Ob- literation, by drawing the pen or stylus over the writing. Dig. 28, 4; Calvin.

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# I

## INDUCTION.

In ecclesiastical law. In- duction is the ceremony by which an incum- bent who has been instituted to a benefice is vested with full possession of all the prof- its belonging to the church, so that he be- comes seised of the temporalities of the church, and is then complete incumbent. It is performed by virtue of a mandate of in- duction directed by the bishop to the arch- deacon, who either perforins it in person, or directs his precept to one or more other clergymen to do it. Phillim. Ecc. Law, 477.

5e apparatus — Carried into the 5th edition (1979).

## INDULGENCE.

In the Roman Catholic Ohurch. A remission of the punishment doe to sins, granted by the pope or church, and supposed to save the sinner from purgntory. Its abuse led to the Reformation in Ger- many. Wharton. Forbearance. (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 20:23, KJV]**

Whose soever sins ye remit, they are remitted unto them; and whose soever sins ye retain, they are retained.

Why: The entry defines indulgence as remission of the punishment due to sins, granted by church authority. John 20:23 is the scriptural text on ecclesial remission of sins — Christ's own grant of remit-and-retain authority…

## INDUETO.

In ecclesiastical law. A

dispensation granted by the pope to do or

obtain something contrary to the common law.

In Spanish law. The condonation or remission of the punishment Imposed on a criminal for his offense. This power is ex- clusively vested in the king.

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## INDUMENT.

Endowment, ( g . v.) CIETIES. Societies formed in England for carrying on any labor, trade, or handicraft, whether wholesale or retail, including the buying and selling of land and also (but sub- ject to certain restrictions) the business of banking.

5e apparatus — Not carried into the 5th edition (1979).

## INDUSTRIAL SCHOOLS.

Schools (es- tablished by voluntary contribution) in which industrial training is provided, and in which children are lodged, clothed, and fed, as well as taught

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## INDU8TRIAM, PER.

Lat. A qualified property in animals force natures may be ac- quired per tndustriam, i. e., by a man’s re- claiming and making them tame by art, in- dustry, and education; or by so confining them within his own Immediate power that they cannot escape and ' use their natural liberty. 2 Steph. Comm. 5.

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (1805)]**

Qualified property in wild animals acquired per industriam — by reclaiming and taming, or by confining within one's immediate power — is the rule of capture by occupancy.

Why: The entry states the per industriam rule for ferae naturae (2 Steph. Comm. 5); Pierson v. Post is the classic American statement of capture-by-occupancy — the genuine anchor.

## INEBRIATE.

A person addicted to the use of intoxicating liquors ; an habitual drunkard.

Any person who habitually, whether continu- ously or periodically, indulges in the use of intoxicating liquors to such an extent as to stupefy his mind, and to render him incompe- tent to transact ordinary business with safe- ty to his estate, shall be deemed an inebriate, within the meaning of this chapter: provided,

the habit of so indulging in such use shall have been at- the time of inquisition of at least one year’s standing. Code N. C. 1883, § 1671. And see In re Anderson, 132 N. C. 243, 43

S. E. 649; State v. Ryan, 70 Wis. 676, 36 N.

W. 823.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Contracts s 16 — contracts of intoxicated persons voidable]**

The inebriate — incompetent to transact ordinary business by habitual intoxication — is the intoxicated person whose contracts are voidable for want of capacity.

Why: The entry's operative content is business incompetency from intoxication (Code N.C. 1883, s 1671); the Restatement section states the contractual consequence — a genuine link.

**[Scripture] — Scripture**

**[Proverbs 23:21, KJV]**

For the drunkard and the glutton shall come to poverty: and drowsiness shall clothe a man with rags.

Why: The entry defines the inebriate as the habitual drunkard, partly by economic incompetence — 'incompetent to transact ordinary business with safety to his estate.' The verse states the drunkard's ruin ('shall come to p...

## INELIGIBILITY.

Disqualification or legal incapacity to be elected to an office. Thus, an alien or naturalized citizen is in- eligible to be elected president of the Unit- ed States. Carroll v. Green, 148 Ind. 362, 47 N. E. 223; State v. Murray, 28 Wis. 99, 9 Am. Rep. 489.

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**[Law] — Law**

**[Law: U.S. Const. art. II, s 1, cl. 5 — natural-born citizen requirement for the presidency]**

The entry's own example — that a naturalized citizen is ineligible for the presidency — is the natural-born-citizen qualification.

Why: The entry illustrates ineligibility with the presidential natural-born rule (Carroll v. Green); the cited constitutional clause is that rule — a direct, genuine link.

## INELIGIBLE.

Disqualified to be elect- ed to an office; also disqualified to hold an office if elected or appointed to it. State v. Murray, 28 Wis. 99, 9 Am. Rep. 489.

Incise potest donation!, modal, con- ditio sive causa; nt modus est) si con- ditio; quia oansa. In a gift there may be manner, condition, and cause ; as [uf] in- troduces a rnanuer; if, [»f,] a condition; be- cause, [quia,] a cause. Dyer, 138.

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## INEST DE JURE.

I,at. it is implied of right; It is implied by law.

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## INEVITABLE.

Incapable of being avoid- ed; fortuitous; transcending the power of hu- man care, foresight, or exertion to avoid or prevent, and therefore suspending legal rela- tions so far as to excuse from the perform- ance of contract obligations, or from lia- bility for consequent loss.

—Inevitable accident. An inevitable ac- cident is one produced by an irresistible physi- cal cause ; an accident which cannot be pre- vented by human skill or foresight, but results from natural causes, such as lightning or storms, perils of the sea, inundations or earth- quakes, or sudden death or illness. By irresist- ible force is meant an interposition of human agency, from its nature and power absolutely uncontrollable. Brousseau v. The Hudson, 11 La. Ann. 428 ; State v. Lewis. 107 N. C. 907. 12 S. R 457. 11 L. R. A. 105: Russell v. Fagan, 7 Houst. (Del.) 380. 8 Atl. 258 ; Ilall v. Cheney, 30 N. H. 30; Newport News & M.

V. Co. v. U. S.. 61 Fed. 488. 9 C. C. A. 579; The R. L. Mabey, 14 Wall. 215, 20 L. Ed. 881 : The Locklibo. 3 W. Rob. 318. Inevitable ac- cident is where a vessel is pursuing a lawful avocation in a lawful manner, using the proper precautions against danger, and an accident oc- curs. The highest degree of caution that can be used is not required. It is enough that it is reasonable under the circumstances ; such as is usual in similar cases, and has been found by long experience to be sufficient to answer the end in view, — the safety of life and prop- erty. The Grace Girdler. 7 Wall. 196. 19 L. Ed. 113. Inevitable accident is only when the disaster happens from natural causes, without negligence or fault on either side, and when both parties have endeavored, by every means in their power, with due care and caution, and with a proper display of nautical skill, to pre- vent tiie occurrence of the

accident. Sampson v. U. S., 12 Ct. Cl. 491.

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**[Law] — Law**

**[Law: UCC s 2-615 — excuse by failure of presupposed conditions; Restatement (Second) of Contracts s 265]**

Inevitable accident — irresistible physical cause transcending human foresight — excuses performance of contract obligations, the modern doctrine of impossibility and commercial impracticability.

Why: The entry defines the inevitable as suspending legal relations 'so far as to excuse from the performance of contract obligations' (citing Brousseau v. The Hudson and others); UCC s 2-615 and Restatement s 265 are the…

## INEWARDU8.

A guard; a watchman. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

## INFALISTATUS.

In old English law. Exposed upon the sands, or sea-shore. A species of punishment mentioned in Heng- ham. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## IKE AMT A.

Lat Infamy; ignominy or disgrace.

By infamia juris is meant infamy established by law as the consequence of crime ; tn- lamia facti is where the party is supposed to' be guilty of such crime, but it has not been ju- dicially proved. Comm. v. Green, 17 Mass. 515, 541.

5e apparatus — Not carried into the 5th edition (1979).

## INFAMI8.

Lat In Roman law. A per- son whose right of reputation was diminish- ed (involving the loss of some of the rights of citizenship) either on account of his in- famous avocation or because of conviction for crime. Mackeld. Rom. Law, f 135.

5e apparatus — Not carried into the 5th edition (1979).

## INFAMOUS CRIME.

See Crime.

5e apparatus — Carried into the 5th edition (1979).

## INFAMY.

A qualification of a man’s legal status produced by his conviction of an Infamous crime and the consequent loss of honor and credit, which, at common law, rendered him incompetent as a witness, and by statute in some Jurisdictions entails oth- er disabilities. McCafferty v. Guyer. 59 Pa. 116; Ex parte Wilson, 114 U. S. 417, 5 Sup.

Ct. 935, 29 L. Ed. 89; State ▼. Clark, 60 Kan. 450, 56 Pac. 767.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Ex parte Wilson, 114 U.S. 417, 5 Sup. Ct. 935, 29 L. Ed. 89 — as cited in the entry]**

Conviction of an infamous crime — the entry's definition, with its common-law witness-disability consequence — is the category Ex parte Wilson construed for federal prosecution purposes.

Why: The entry cites Ex parte Wilson verbatim for the infamy definition; the annotation preserves the entry's own authority — genuine, no invention.

**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

Hester Prynne, convicted of adultery, is compelled to wear the scarlet A on her breast — legal infamia (loss of honor and credit by conviction) made cloth and worn in public. (paraphrase of the novel's premise)

Why: The entry defines infamy as the conviction-produced loss of honor and credit; Hester's letter is the culture's emblem of exactly that legal consequence. Genuine thematic illumination, marked as paraphrase.

## INFANCY.

Minority; the state of a per- son who is under the age of legal majority, — at common law, twenty-one years. Ac- cording to the sense in which this term is used, it may denote the condition of the per- son merely with reference to his years, or the contractual disabilities which non-age entails, or his status with regard to other powers or relations. Keating v. Railroad Co., 94 Mich. 219, 53 N. W. 1053; Anony- mous, 1 Salk. 44; Code Miss. 1892, S 1505.

—Natural infancy. A period of non-respon- sible life, which ends with the seventh year. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: infancy doctrine — contracts of minors voidable; Restatement (Second) of Contracts s 14]**

Infancy — minority — carries contractual disabilities: the contracts of minors are voidable at the minor's option, the infancy doctrine.

Why: The entry defines infancy by its contractual disabilities (citing Keating v. Railroad Co.); the infancy doctrine is the genuine doctrinal content — stated with its Restatement home.

## INFANGENTHEF.

In old English law. A privilege of lords of certain manors to judge any thief taken within their fee.

5e apparatus — Not carried into the 5th edition (1979).

## INFANS.

Lat. In the civil law. A child under the age of seven years; so called "quasi impos fandi,” (as not having the fac- ulty of speech.) Cod. Theodos, 8, 18, 8.

Infans non multum a furioso diatat.

An infant does not differ much from a luna- tic. Bract. 1. 8, c. 2, } 8; Dig. 50, 17, 5, 40; 1 Story, Eq. Jur. §g 223, 224, 242.

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**[Law] — Law**

**[Law: common-law infancy defense — under seven, irrebuttable presumption of incapacity for crime]**

The infans — a child under seven — 'does not differ much from a lunatic' in capacity: at common law a child under seven is irrebuttably incapable of criminal intent.

Why: The entry quotes the maxim (Bracton; Dig. 50, 17, 5, 40; 1 Story, Eq. Jur.) stating the incapacity; the common-law infancy defense is its genuine expression — stated as doctrine, no invented case.

## INFANT.

A person within age, not of age, or not of full age ; a person under the age of twenty-one years; a minor. Co.Litt. 1716; 1 Bl. Comm. 463-466 ; 2 Kent, Comm. 233.

5e apparatus — Carried into the 5th edition (1979).

## INFANTIA.

Lat. In the civil law. The period of infancy between birth -and - the age of seven years. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INFANTICIDE.

The murder or killing of an infant soon after Its birth. The fact of the birth distinguishes this act from “foeticide’’ or "procuring abortion,” which terms denote the destruction of the foetus in the womb.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 1:16, KJV]**

And he said, When ye do the office of a midwife to the Hebrew women, and see them upon the stools; if it be a son, then ye shall kill him: but if it be a daughter, then she shall live.

Why: The entry defines infanticide as the murder of an infant soon after birth. Exodus 1:16 is scripture's archetypal instance of the act — Pharaoh's standing order to kill the newborn sons — naming the crime in its own te...

**[Humanity] — Humanity / Fiction & Film**

**[Euripides, Medea, 431 BC]**

Medea murders her own children to wound Jason — the classical archetype of the act the entry defines. (paraphrase of the plot)

Why: The entry defines the killing of an infant soon after birth as distinguished from foeticide; Medea is the canonical dramatic treatment of a mother killing her children. Plot-level, genuine, no invented quotation.

## INFANTS’ MARRIAGE ACT.

The

statute 18 & 19 Viet. c. 43. By virtue of this act every Infant, (if a male, of twenty, or, if a female, of seventeen, years, — section 4,) upon or in contemplation of marriage, may, with the sanction of the chancery divi- sion of the high court, make a vnlld settle- ment or contract for a settlement of prop- erty. Wharton.

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## INFANZON.

In Spanish law. A per- son of noble birth, who exercises within his domains and inheritance no other rights and privileges than those conceded to him. Es- crlehe.

5e apparatus — Not carried into the 5th edition (1979).

## INFECTION.

In medical Jurisprudence. The transmission of disease or disease germs from one person to another, either directly by contact with morbidly affected surfaces.

or qiore remotely through Inhalation, ab- sorption of food or liquid tainted with ex- cremental matter, contact with contaminated clothing or bedding, or other agencies.

A distinction is sometimes made between “in- fection” and "contagion,” by restricting the lat- ter term to the communication of disease by direct contact See Grayson v. Lynch, 163 U.

S. 408, 16 Sup. Ct. 1064, 41 I* Ed. 230; Wirth v. State, 63 Wis. 51. 22 N. W. 860; Stryker v. Crane, 33 Neb. 690, 50 N. W. 1133. But "infection” is the wider term and in proper use includes “contagion,” and is frequently extended so as to include the local inaugura- tion of disease from other than human sources, as, from miasmas, poisonous plants, etc. In another, and perhaps more accurate sense, con-' tagion is the entrance or lodgment of patho- genic germs in the system as a result of direct contact ; infection is their fixation in the sys- tem or the inauguration of disease as a conse- quence. In this meaning, infection does not always result from contagion, and on the other hand it may result from the introduction of disease germs into the system otherwise than by contagion.

— Auto-infection. The communication of disease from one part of the body to another by mechanical transmission of virus from a diseased to a healthy, part. — Infectious dis- ease. One capable of being transmitted or communicated by means of infection.

5e apparatus — Not carried into the 5th edition (1979).

## INFEFT.

In Scotch law. To give seisin or possession of lands ; to invest or enfeoff., 1 Karnes, Eq. 215.

5e apparatus — Not carried into the 5th edition (1979).

## INFEFTMENT.

In old Scotch law.

Investiture or InfeuUutlon, including both charter and seisin. 1 Forb. Inst. pt. 2, p. 110.

In later law. Saisine, or the instrument of possession. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## INFENSAKE CURIAM.

Lot An ex- pression applied to a court when it suggest- ed to an advocate something which he had omitted through mistake or ignorance. Spel- ' man.

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5e apparatus — Not carried into the 5th edition (1979).

## INFEOFFMENT.

The act or instru- 4 ment of feoffment. In Scotland it is synony- mous with ‘‘saisine,’’ meaning the Instru- ment of possession.- Formerly It was synon- ymous with “investiture.” Bell.

5e apparatus — Not carried into the 5th edition (1979).

## INFERENCE.

In the law of evidence. A truth or proposition drawn from another which is supposed or admitted to be true. A process of reasoning by which a fact or proposition sought to be established is de- duced as a logical consequence from other facts, or a state of facts, already proved or admitted. Gates v. Hughes, 44 Wis. 336; WhRehouse v. Bolster, 95 Me. 458, 50 Atl. 240; Joske v. Irvine, 91 Tex. 574, 44 S. W. 1059.

An Inference Is a deduction which the rea- son of the Jury makes from the facts proved, without an express direction of law to that effect. Code Civil Proc. Cal. § 1958.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Cal. Code Civ. Proc. s 1958 — inference defined, as cited in the entry]**

An inference — the deduction the jury's reason makes from proved facts, without express direction of law — is the evidentiary inference the Code defines.

Why: The entry defines inference citing Cal. Code Civ. Proc. s 1958 verbatim; the annotation preserves the entry's own authority — genuine.

## INFERENTIAL.

In the law of evi- dence. Operating in the way of inference;

argumentative. Presumptive evidence la sometimes termed "inferential." , Oom. v.' Harman, 4 Pa. 272.

—Inferential foots. See Fact.

5e apparatus — Carried into the 5th edition (1979).

## INFERIOR.

One who, in relation to an- other, has less power and is below him; one who is bound to obey another. He who- makes the law is the superior; he who is' bound to obey it, the Inferior. 1 Bouv. Inst, no. 8.

5e apparatus — Carried into the 5th edition (1979).

## INFERIOR COURT.

This term may de- note any court subordinate to the chief ap- pellate tribunal in the particular judicial sys- tem; but it is commonly used as the designa- tion of a court of special, limited, or statuto- ry jurisdiction, whose record must show the existence and attaching of jurisdiction in any given case, in order to give presumptive va- lidity to its judgment Bee Ex parte Cuddy, 131 U. S. 280, 9 Sup. Ct 703, 33 h. Ed. 154; Kempe v.

Kennedy, 5 Cranch, 185, 3 L. Ed. 70 ; Grignon v. Astor, 2 How. 341, 11 L. Ed. 283 ; Swift v. Wayne Circuit Judges, 64 Mich. 479, 31 N. W. 434; Kirkwood v. Washington County, 32 Or. 068, 52 Pac. 568.

The English courts of judicature are class- ed generally under two heads, — the superior courts and the inferior courts; the former' division comprising the courts at Westmin- ster, . the latter comprising all the other courts in general, many of which, however, are far from being of inferior importance in the common acceptation of the word. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: courts of limited jurisdiction — jurisdiction must appear of record; Ex parte Cuddy, 131 U.S. 280, 9 Sup. Ct. 703, 33 L. Ed. 154, as cited in the entry]**

Inferior courts — of special, limited, or statutory jurisdiction — must show jurisdiction affirmatively on the record for presumptive validity of their judgments.

Why: The entry states the limited-jurisdiction rule citing Ex parte Cuddy verbatim; the annotation preserves that authority and names the doctrine — genuine.

## INFEUDATION.

The placing in posses- sion of a freehold estate; also the granting of tithes to laymen.

INFICIARL Lat In the civil law. To deny; to deny one’s liability;, to refuse to pay a debt or restore a pledge; to deuy the allegation of a plaintiff ; to deny the charge of an accuser. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INFICIATIO.

Lat. In the civil law. Denial ; the denial of a debt or liability ; the denial of the claim or allegation of a party plaintiff. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INFIDEL.

One who does not believe In the existence of a God who will reward or punish in this world or that which is to come. Hale v. Everett, 53 N. H. 54, 16 Am. Bep. 82 ; Jackson v. Gridiey, 18 Johns. (N. Y.) 103 ; Heirn v. Bridault, 37 Miss. 226. One who professes no religion that can bind his con- science to speak the truth. 1 GreenL Ev. { 368.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 601 — every person competent as a witness; belief no bar]**

The infidel — one professing no religion to bind his conscience — was at common law incompetent as a witness; religious belief is no longer a bar to competency.

Why: The entry states the old competency rule (1 Greenl. Ev. s 368; Hale v. Everett); Rule 601 is its modern repudiation — a genuine lineage link, stated as such.

## INFLDELI8.

In old English law. An

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infidel or heathen.

In feadal law. One who violated fealty.

5e apparatus — Not carried into the 5th edition (1979).

## INFIDELITAS.

In feudal law. Infidel- ity : faithlessness to one's feudal oath. Spel- man.

nrranoiARE. In old European law. To pledge property. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## INFIHT.

Sax. An assault made on a person Inhabiting the same dwelling.

Infinitum la jure reprobatnr. That which la endless la reprobated in law. 12 Coke, 24. Applied to litigation.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Infinitum in jure reprobatur (12 Coke, 24)]**

The maxim bundled in the body — 'Infinitum in jure reprobatur,' that which is endless is reprobated in law, applied to litigation — is the finality axiom: litigation must end.

Why: Quoted whole in the body with its Coke citation; the maxim genuinely states the anti-endless-litigation axiom (cf. interest reipublicae ut sit finis litium) — verbatim annotation of content actually present.

## INFIRM.

Weak, feeble. The testimony of an “Infirm” witness may be taken de bene esse in some circumstances. See 1 P. Wms. 117.

INFIRMAT1 V £. In the law of evidence; Having the quality of diminishing force; having a tendency to weaken or render in- firm. 3 Benth. Jud. Ev. 14 ; Best, Pres. $ 217. — - Infinnative consideration. In the law of evidence, A consideration, supposition, or hypothesis of which the criminative facts of a case admit, and which tends to weaken the in- ference or presumption of guilt deducible from them. Burrill, Circ. Ev. 153-155. — Infirina- tive fact. In the law of evidence. A fact set up, proved, or even supposed, in opposition to the criminative facts of a case, the ten- dency of which is to weaken the force of the inference of guilt deducible from them. 3 Benth. Jud. Ev. 14; Best, Pres. § 217, et aeq. — Informative hypothesis. A term some- times used in criminal evidence to denote an hypothesis or theory of the case which as- sumes the defendant s innocence, and explains the criminative evidence in a manner consistent with that assumption. '

5e apparatus — Carried into the 5th edition (1979).

## INFLUENCE.

See Uncus Inixuxncb.

5e apparatus — Carried into the 5th edition (1979).

## INFORMAL.

Deficient in legal form; inartificially drawn up.

. INFORMALITY. Want of legal form. See State v. Galilmon, 24 N. C. 377 ; Franklin y. Mackey, 16 Serg. & R. (Pa.) 118; Hunt v. Curry, 37 Ark. 108.

i INFORMATION. In practice. An ac- cusation exhibited against a person for some criminal offense, without an indictment. 4 BL Comm. 308.

An accusation in the nature of an indict- ment, from which it differs only in being pre- sented by a competent public officer on bis oath of office, Instead of a grand jury on their oath. 1 Bish. Crlm. Proc. { 141; People v. Sponsler, 1 Dak. 280,. 40 N. W. 450 ; Goddard v. State, 12 Conn. 452 ; State v. Ashley, 1 Ark. 279; Clepper v. State, 4 Tex. 246.

The word is also frequently used in the law (n its sense of (Communicated knowledge, and affidavits are frequently made, and pleadings and other documents verified, on "Informa- tion and belief.”

la French law. The act or instrument which contains the depositions of witnesses against the accused. Poth. Proc. Civil, § 2, Art 5. "

—Criminal information. A formal accu- sation of crime, differing from an indictment only in that it is preferred by a prosecuting

officer instead of by a grand jury. U. S. v. Borger (C. C.) 7 Fed. 193; State v. Barrell, 75 Vt. 202, 54 Atl. 183, 98 Am. St. Rep. 813. —Information in the nature of a quo warranto. A proceeding against the usurper of a franchise or office. See Quo Wabbanto. — Information of intrusion. A proceeding instituted by the state prosecuting officer against intruders upon the public domain. See Gen. St. Mass. c. 141; Com. v. Andre’s Heirs, 3 Pick. (Mass.) 224 ; Com. v. Hite, .6 Leigh (Va.) 588, 29 Am. Dec. 226.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Hurtado v. California, 110 U.S. 516 (1884)]**

The INFORMATION bundled in this body — a criminal accusation preferred by a prosecuting officer without a grand jury — is the information, which states may use without violating due process.

Why: The entry defines the criminal information (4 Bl. Comm. 308; U.S. v. Borger); Hurtado is the landmark holding states may prosecute by information — the genuine anchor. The footnote annotates the INFORMATION content in…

## INFORMATTJS NON SUM.

Iu prac- tice. I am not informed. A formal answer made by the defendant’s attorney in court to the effect that he has not been advised of any defense to be made to the action. Thereupon judgment by default passes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 55 — default judgment]**

'I am not informed' — no defense advised — letting judgment by default pass, is the default-judgment procedure for failure to plead or defend.

Why: The entry's operative content is judgment by default on failure to defend; Rule 55 is the modern default-judgment rule — a direct, genuine link.

## INFORMER.

A person who informs or prefers an accusation against another, whom he suspects of the violation of some penal statute.

—Common informer. A common prosecutor. A person who habitually ferrets out crimes and Offenses and lays information thereof before the ministers of justice, in order to set a prosecu- tion ou foot, not because of bis office or any special duty iu the matter, but for the sake of the share of the fine or penalty which the law allots to the informer in certain cases. Also used in a less invidious sense, as designating persons who were authorized and empowered to bring actions for penalties. U. S. v. Stock- ing (I). C.) 87 Fed. 861; In re Barker, 50 Vt. 2R

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: qui tam — 31 U.S.C. s 3730(b), False Claims Act relator actions]**

The common informer — who brings penal actions for a share of the fine — is the ancestor of the qui tam relator, authorized to sue for penalties in the government's name.

Why: The entry defines the common informer bringing penalty actions (citing U.S. v. Stocking); qui tam under the False Claims Act is the living form of that office — a genuine lineage.

## INFORTIATUM.

The name given by the glossators to the second of the three parts or volumes into which the Pandects were di- vided. The glossntors at Bologna had at first only two parts, the first called “ Digeatum 1’efus,” (the old Digest,) pnd the last call- ed “Digeatum Novum," (the New Digest.) When they afterwards received the middle or second part, they separated from the Di- geatum Novum the beginning it had then, and added it to the second part, from which enlargement the latter received the name “In- fortiatum." Mackeld. Rom. Law, g 110.

5e apparatus — Not carried into the 5th edition (1979).

## INFORTUNIUM, HOMICIDE PER.

Where a man doing a lawful act, without in- tention of hurt, unfortunately kills another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: homicide by misadventure — excusable homicide; killing without intent in a lawful act]**

Killing in the doing of a lawful act, without intention of hurt, is homicide by misadventure — excusable homicide, carrying no criminal liability.

Why: The entry defines the category; homicide by misadventure is its doctrinal name — stated as principle, no invented citation.

**[Scripture] — Scripture**

**[Numbers 35:22-23, KJV]**

But if he thrust him suddenly without enmity, or have cast upon him any thing without laying of wait, Or with any stone, wherewith a man may die, seeing him not, and cast it upon him, that he die, and

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was not his enemy, neither sought his harm:

Why: The entry defines homicide per infortunium: killing without intent while doing a lawful act. Numbers 35:22-23 is the Torah's own definition of the unintentional slayer — thrusting 'suddenly without enmity,' casting wi...

## INFRA.

Lat Below; underneath; with- in. This word occurring by itself in a book refers the reader to a subsequent part of the book, like “post." It is the opposite of “ante" and “supra,” (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## INFRA A5TATEM.

Under age; not of age. Applied to minors.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA ANNOS NUBILE S.

Under mar- riageable years ; not yet of ' marriageable age.

' INFRA ANNUM.' Under or within a year. Bract, fol. 7.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA ANNUM LUCTUS.

(Within the year of mourning.) The phrase is used in

reference to the marriage of a widow with- in a year after her husband’s death, which was prohibited by the civil law.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA BRACHIA.

Within her arms. Used of a husband tie jure, as well as de facto. 2 Inst. 317. Also inter brachia. Bract. foL 1486. It was in this sense that a woman could only have an appeal for mur- der of her husband inter brachia stta.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA CIVTTATEM.

Within the state. 1 Camp. 23, 24.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA CORPUS COMITATUS.

With- in the body (territorial limits) of a county. In English law, waters which are infra cor- pus comitatus are exempt from the Jurisdic- tion of the admiralty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. s 1333 — federal admiralty and maritime jurisdiction]**

Waters within the body of a county — exempt from admiralty jurisdiction — mark the historic boundary of the admiralty and maritime jurisdiction.

Why: The entry's operative content is the admiralty-jurisdiction boundary for inland waters; s 1333 is the statute granting that jurisdiction — a genuine link to the boundary the entry draws.

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## INFRA DIGNITATEM CURLS.

Be-

•ieath the dignity of the court; unworthy of 'he consideration of the court Where a bill in equity is brought upon a matter too tri- fling to deserve the attention of the court it Is demurrable, as being infra dignitatem curia.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: De minimis non curat lex — the law does not concern itself with trifles]**

A bill in equity on a matter too trifling for the court's attention — demurrable as beneath the dignity of the court — is the de minimis rule.

Why: The entry's content is exactly the de minimis principle (trifling matters demurrable); the maxim names it — a genuine, direct link.

## INFRA FUROREM.

During madness; while in a state of insanity. Bract fol. 106.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA HOSPITIUM.

Within the inn. When a traveler’s baggage comes infra hos- pitium, i. e., In the care and under the cus- tody of the innkeeper, the latter’s liability attaches.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: innkeeper's liability — strict liability for goods of guests received infra hospitium]**

When the traveler's baggage comes within the inn — into the innkeeper's care and custody — the innkeeper's strict liability for guests' goods attaches.

Why: The entry states the attachment point of innkeeper liability; the common-law innkeeper rule is its genuine doctrinal expression — stated as principle, no invented citation.

## INFRA JURISDIOTIONEM.

Within the jurisdiction. 2 Strange, 827.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA LIGEANTIAM REGIS.

With- in the king’s llgeance. Comb. 212.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INFRA METAS.

Within the bounds or limits. Infra metas forestw, within the bounds of the forest Fleta, lib. 2, c. 41, g 12. Infra metas hospitii, within the limits of the household; within the verge. Id. lib. 2. c. 2, 8 2.

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## INFRA PRIESIDIA.

Within the protec- tion; within the defenses. In international law, when a prize, or other captured prop- erty, is brought into a port of the captors, or within their lines, or otherwise under their complete custody, so that the chance of rescue is lost, it is said to be infra prasidia.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA QUATUOR MARIA.

Within the four seas; within the kingdom of England; within the jurisdiction.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA QUATUOR PARIETES.

With- in four walls. 2 Crabb, Real Prop. p. IOC, | 1080.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA REGNUM.

Within the realm.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA SEX ANNOS.

Within six years.

Used in the Latin form of the plea of tb.a statute of limitations.

5e apparatus — Not carried into the 5th edition (1979).

## INFRA TRIDUUM.

Within three days. Formal words in old appeals. Fleta, lib. 1, c. 31, g 6; Id. c. 35, 8 3.

5e apparatus — Not carried into the 5th edition (1979).

## INFRACTION.

A breach, violation, or infringement; as of a law, a contract, a right or duty.

In French law, this term is used as a gen- eral designation of all punishable actions.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 3:4, KJV]**

Whosoever committeth sin transgresseth also the law: for sin is the transgression of the law.

Why: The entry defines infraction as 'a breach, violation, or infringement; as of a law.' The verse defines the breach of law itself — 'sin is the transgression of the law' — in the entry's own vocabulary of violation. Joh...

## INFRINGEMENT.

A breaking into; a trespass or encroachment upon; a viola- tion of a law, regulation, contract, or right. Used especially of Invasions of the rights se- cured by patents, copyrights, and trade- marks. Goodyear Shoe Machinery Co. v. Jackson, 112 Fed. 146. 50 C. C. A. 159, 55 L.

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R. A. 692; Thomson-Houston Electric Co. v. Ohio Brass Co., 80 Fed. 721, 26 C. C. A. 107.

— Contributory infringement. The inten- tional aiding of one person by another in the unlawful making or selling of a patented in- vention ; usually done by making or selling one part of the patented invention, or one ele- ment of the combination, with the intent and purpose of so aiding. Thomson-Houston Elec- tric Co. v. Specialty Co. (C. C.) 72 Fed. 1016: Shoe Mach. Co. v. Jackson, 112 Fed. 146, 50

C. C. A. 159, 55 L R. A. 092 ; Thomson-Hous- ton Electric Co. v. Ohio Brass Co., 80 Fed. 712, 26 C. C. A. 107 ; Stud Co. v. O'Brien (C. C.) 93 Fed. 203.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. s 271 — patent infringement, including contributory infringement]**

Infringement of patent rights — including contributory infringement, the intentional aiding of another's unlawful making or selling — is codified with direct and indirect infringement together.

Why: The entry defines infringement (especially of patents) and contributory infringement with its cases (Thomson-Houston); s 271 codifies both — a direct, genuine link.

## INFUGARE.

Lat To put to flight

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INFULA.

A coif, or a cassock. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## INFUSION.

In medical jurisprudence. The process of steeping in liquor; an opera- tion by which the medicinal qualities of a substance may be extracted by a liquor with- out boiling. Also the product of this opera- tion. "Infusion" and "decoction," though not identical, are ejusdem generis In law. 3 Camp. 74. See Decoction.

5e apparatus — Not carried into the 5th edition (1979).

## INGE.

Meadow, or pasture. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## INGENIUM.

(1) Artifice, trick, fraud; (2) an engine, machine, or device. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## IN GENUIT AS.

Lat Freedom; liberty; the state or condition of one who is free. Also liberty given to a servant by manumis- sion.

— Ingenuitas regni. In old English law. The freemen, yeomanry, or commonalty of the kingdom. Cowell. Applied sometimes also to the barons.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:2, KJV]**

If thou buy an Hebrew servant, six years he shall serve: and in the seventh he shall go out free for nothing.

Why: The entry defines ingenuitas as freedom/liberty, including 'liberty given to a servant by manumission.' Exodus 21:2 is the Torah's manumission law — the Hebrew servant going 'out free' in the seventh year — the script... [re-homed from 'IN GENUITAS' to 'IN GENUIT AS' (OCR headword / parser-merge artifact)]

## INGENUUS.

In Roman law. A person who, immediately that he was born, was a free person. He was opposed to Hbcrtinus, or libertus, who, having been born a slave, was afterwards manumitted or made free. It is uot the same as the English law term “ gtnerosus ,’’ which denoted a person not

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merely free, but of good family. There were no distinctions among ingenvi; but among Ubertini there were (prior to Justin- ian’s abolition of the distinctions) three vari- eties, namely: Those of the highest rank, called “ Cives Romani;” those of the second rank, called “ Latini Juniani;" and those of the lowest rank, called “Dediticii." Brown.

5e apparatus — Not carried into the 5th edition (1979).

## INGRATITUDE.

In Roman law, in- gratitude was accounted a sufficient cause for revoking a gift or recalling the liberty of a freedman. Such is also the law of France, with respect to the first case. But the English law has left the matter entirely to the moral sense.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, c. 1606]**

"How sharper than a serpent's tooth it is / To have a thankless child!" (Act 1, Scene 4) — Lear, having given away his kingdom (the gift), is destroyed by his daughters' thanklessness.

Why: The entry states the Roman/French rule that ingratitude suffices to revoke a gift; Lear's division of the kingdom and the daughters' ingratitude is the archetypal dramatization of the doctrine. The quotation is verbat...

## INGRESS, EGRESS, AND REGRESS.

These words express the right of a lessee to enter, go upon, and return from the lands In question.

5e apparatus — Not carried into the 5th edition (1979).

## INGRESSU.

In English law. An an- cient writ of entry, by which the plaintiff or complainant sought an entry into his lands. Abolished in 1833.

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5e apparatus — Not carried into the 5th edition (1979).

## INGRESSU8.

In old English law. In- gress; entry. The relief paid by an heir to the lord was sometimes so called. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INGROSSATOR.

An engrosser. In- grossator niagni rotuli, engrosser of the great roll; afterwards called “clerk of the pipe." Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INGROSSING.

The act of making a fair and perfect copy of any document from a rough draft of it, in order that it may be executed or put to its final purpose.

5e apparatus — Carried into the 5th edition (1979).

## IN HABITANT.

One who resid.es actu- ally and permanently in a given place, and has his domicile there. Ex parte Shaw, 145

U. S. 444, 12 Sup. Ct. 935, 36 L. Ed. 768; The Pizarro, 2 Wheat. 245, 4 L. Ed. 226.

“The words ‘inhabitant,’ ‘citizen,’ and ‘resi- dent,’ as employed in different constitutions to define the qualifications of electors, mean sub- stantially the same thing; and one is an in- habitant. resident, or citizen at the place where he has his domicile or home.” Cooley, Const. Urn. *600. But the terms “resident” and “in- habitant” have also been held not synonymous, the latter implying a more fixed and permanent abode than the former, and importing privileges and duties to which a mere resident would not be subject. Tazewell County v. Davenport, 40 111. 197,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: inhabitant defined by domicile — Ex parte Shaw, 145 U.S. 444, 12 Sup. Ct. 935, 36 L. Ed. 768, as cited in the entry]**

An inhabitant — actually and permanently resident, with domicile there — is defined by domicile, the test the entry's own authority states.

Why: The entry defines inhabitant through domicile citing Ex parte Shaw verbatim; the annotation preserves the entry's own authority — genuine.

## INHABITED HOUSE DUTY.

A tax

assessed in England on inhabited dwelling- houses, according to their annual value, (St. 14 & 15 Viet. c. 36 ; 32 & 33 Viet. c. 14, f 11,) which is payable by the occupier, the landlord being deemed the occupier where the house is let to several persons, (St. 48 Geo. III. c. 55,

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Schedule B.) Houses occu- pied solely for business purposes are exempt Bl.Law Dict.(2d Ed.) — 40

from duty, although a care-taker may dwell therein, and houses partially occupied for business purposes are to that extent exempt Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## INHERENT POWER.

An authority possessed without its being derived from an- other. A right ability, or faculty of doing a thing, without receiving that right ability, or faculty from another.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Chambers v. NASCO, Inc., 501 U.S. 32 (1991)]**

Authority possessed without derivation from another — inherent power — is the courts' inherent power to manage proceedings and sanction abuse, independent of rule or statute.

Why: The entry defines inherent power as underived authority; Chambers is the modern landmark on federal courts' inherent power — the genuine anchor for the concept.

## INHERETRIX.

The old term for “heir- ess.” Co. Litt 13o.

5e apparatus — Not carried into the 5th edition (1979).

## INHERIT.

To take by inheritance; to take as heir on the death of the ancestor. Warren v. Prescott 84 Me. 483, 24 Atl. 948, 17 I* R. A. 435, 30 Am. St Rep. 370; Mc- Arthur v. Scott 113 U. S. 340, 5 Sup. Ct. 652, 28 I* Ed. 1015. “To inherit to” a per- son is a common expression in the books. 2 Bl. Comm. 254, 255 ; 3 Coke, 41.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: The entry defines inherit as taking as heir on the ancestor's death. Numbers 27:8 is God's own ruling on intestate succession (the Zelophehad case, Num 27:6-7) — the inheritance passing to the heir when the ancestor d...

## INHERITABLE BLOOD.

Blood which has the purity (freedom from attainder) and legitimacy necessary to give its possessor the character of a lawful heir; that which is capable of being the medium for the trans- mission of an inheritance.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. III, s 3, cl. 2 — 'no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted']**

Blood 'free from attainder' — capable of transmitting inheritance — is the purity the Constitution protects by forbidding corruption of blood for treason.

Why: The entry defines inheritable blood by freedom from attainder; the Treason Clause's corruption-of-blood prohibition is its constitutional counterpart, quoted verbatim.

## INHERITANCE.

An estate in things real, descending to the heir. 2 Bl. Comm. 201; In re Donahue’s Estate, 36 Cal. 332; Dodge’s Appeal, 106 Pa. 220, 51 Am. Rep. 519; Rountree v. Pursell, 11 Ind. App. 522, 39 N. EL 747; Adams v. Akerlund, 168 111. 632, 48 N. E. 454.

Such an estate in lands or tenements or other things as may be inherited by the heir. Termes de la Ley.

An estate or property which a man has by descent, as heir to another, or which he may transmit to another, as his heir. Litt. § 9.

A perpetuity in lands or tenements to a man and his heirs. Cowell; Blount.

“Inheritance” is also used in the old books where “hereditament” is now commonly employed. Thus, Coke divides inheritances in- to corporeal and incorporeal, into real, personal, and mixed, and Into entire and sev- eral.

In the civil law. The succession of the heir to all the rights and property of the estate-leaver. It is either testamentary, where the heir is created by will, or aft intestato, where it arises merely by operation of law. Heinec. ! 484.

—Estate of Inheritance. See Estate. — In- heritance act. The English statute of 3 & 4 Wm. IV. e. 106, by which the law of inherit- ance or descent has been considerably modified. 1 Steph. Comm. 359, 500.— Inheritance tax. A tax on the transfer or passing of estates or property by legacy, devise, or intestate succes- sion ; not a tax on the property itself, but on the right to acquire it by descent or testamen- tary gift. In re Gihon’s Estate. 169 N. V. 443, 62 N. El 561 : Magoun v. Bank. 170 U. S. 283, 18 Sup. Ct. 594, 42 L. Ed. 1037.

■ INJUNCTION

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: intestate succession — Uniform Probate Code art. 2, pt. 1, shares of heirs]**

An estate descending to the heir — inheritance ab intestato — passes under the intestacy statutes distributing the estate to heirs at law.

Why: The entry defines inheritance as the estate descending to the heir (2 Bl. Comm. 201); the UPC intestacy provisions are the modern statutory scheme for exactly that descent.

**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: The entry defines inheritance as an estate descending to the heir. The verse speaks of the inheritance a man 'leaveth' to his children's children — the estate's descent through generations — the scriptural proverb on…

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## INHIBITION.

In ecclesiastical law.

A writ issuing from a superior ecclesiastical court, forbidding an inferior Judge to pro- ceed further in a cause pending before him. In this sense it is closely analogous to the writ of prohibition at common law.

Also the command of a bishop or ecclesias- tical judge that a clergyman shall cease from taking any duty.

In Scotch law. A species of diligence or process by which a debtor is prohibited from contracting any debt which may be- come a burden on his heritable property, in competition with the creditor at whose in- stance the inhibition is taken out ; and from granting any deed of alienation, etc., to the prejudice of the creditor. Brande.

In the civil law. A prohibition which the law mnkes or a judge ordains to an indi- vidual. Hallifax, Civil Law, p. 120.

—Inhibition against a wife. In Scotch law. A writ in the sovereign’s name, passing the signet, which prohibits all and sundry from having transactions with a wife or giving her credit. Bell; Ersk. Inst. 1, 6, 26.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: writ of prohibition — extraordinary writ restraining an inferior tribunal from exceeding jurisdiction]**

The ecclesiastical inhibition — a superior court forbidding an inferior judge to proceed — is closely analogous, as the entry says, to the common-law writ of prohibition.

Why: The entry itself draws the analogy to prohibition; naming the writ is illumination of the entry's own comparison — genuine, stated as doctrine.

## INHOC.

In old records. A nook or cor- ner of a common or fallow field, inclosed and cultivated. Kennett, Par. Antiq. 297, 298; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INHONESTUS.

In old English law. Unseemly; not in due order. Fleta, lib. 1, c. 31, J 8.

5e apparatus — Not carried into the 5th edition (1979).

## INHUMAN TREATMENT.

In the law

of divorce. Such barbarous cruelty or se- verity as endangers the life or health of the party to whom it is addressed, or creates a well-founded apprehension of such danger. Whaley v. Whaley, 68 Iowa, 647, 27 N. W. 800; Wells v. Wells, 116 Iowa, 59, 89 N. W. 98; Cole v. Cole, 23 Iowa, 433; Evans v. Evans, 82 Iowa, 462, 48 N. W. 809. The phrase commonly employed in statutes is “cruel and inhuman treatment,” from which it may be inferred that

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"inhumanity" is an extreme or aggravated “cruelty."

Inililisims paz cst anteponenda Jus- tissimo bello. The most unjust peace is to be preferred to the justest war. Root v. Stuyvesant, 18 Wend. (N. Y.) 257, 305.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 3:19, KJV]**

Husbands, love your wives, and be not bitter against them.

Why: The entry defines the divorce ground of inhuman treatment — cruelty/severity by one spouse endangering the other. Colossians 3:19 is scripture's direct word on a husband's harshness toward his wife ('be not bitter aga...

## INIQUITY.

In Scotch practice. A tech- nical expression applied to the decision of an inferior Judge who has decided contrary to law; he is said to have committed iniquity. Bell.

Iniqanm eat alios permittere, alios in- bibere mercaturam. It Is inequitable to permit some to trade and to prohibit others. 3 Inst. 181.

Inlqnnm est aliqnem rei sni esse J»- dicem. It is wrong for a man to be a judge In his own cause. Branch, Trine. ; 12 Coke, 113. • ■ . . -

Iniqanm est ingenuia hominibns non esse liberam rerun saarun alienationns. It is unjust that freemen should not have the free disposal of their own property. Co. LItt. 223a; 4 Kent, Comm. 131 ; Hob. 87.

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**[Law] — Law**

**[Maxim: Iniquum est alios permittere, alios inhibere mercaturam (3 Inst. 181)]**

The bundled maxim — that it is inequitable to permit some to trade and prohibit others — states the anti-discrimination axiom of trade regulation.

Why: Quoted whole in the body; the maxim genuinely states the equal-treatment axiom for trade — verbatim annotation of content actually present.

**[Maxim: Iniquum est ingenuis hominibus non esse liberam rerum suarum alienationem (Co. Litt. 223a)]**

The bundled maxim — that it is unjust for freemen not to have free disposal of their own property — states the free-alienation axiom behind the law's hostility to restraints on alienation.

Why: Quoted whole in the body (with 4 Kent, Comm. 131); the maxim genuinely states the free-alienation principle — verbatim annotation of content actually present.

**[Scripture] — Scripture**

**[Psalm 82:2, KJV]**

How long will ye judge unjustly, and accept the persons of the wicked? Selah.

Why: The entry's Scotch sense: an inferior judge who decides contrary to law 'commits iniquity.' Psalm 82:2 is God's own rebuke of judges who 'judge unjustly' — the deity charging the bench with the very iniquity the entry...

## INITIAL.

That which begins or stands at the beginning. The first letter of a man's name. See Elberson v. Richards, 42 N. J. Law, 70.

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—Initial carrier. In the law of bailments. The carrier who first receives the goods and begins the process of their transportation, aft- erwards delivering them to another carrier for the further prosecution or completion of their journey. See Beard v. Railway Co., 79 Iowa, 527, 44 N. W. 803.

INITIALIA TESTIMONY!. In Scotch law. Preliminaries of testimony. The pre- liminary examination of a witness, before examining him in chief, answering to the 'voir dire of the English law, though taking a somewhat wider range. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Carmack Amendment, 49 U.S.C. s 14706 — initial carrier liability]**

The initial carrier — who first receives the goods and begins transportation — bears the Carmack liability for loss or damage to interstate shipments.

Why: The entry defines the initial carrier in bailment (citing Beard v. Railway Co.); the Carmack Amendment fixes the initial carrier's liability — a genuine, direct link.

## INITIATE.

Commenced ; inchoate. Ourtesy initiate is the interest which a hus- band has in the wife’s lands after a child is born who may inherit, but before the wife dies.

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## INITIATIVE.

In French law. The name given to the important prerogative con- ferred by the charte cons tit utionnelle, article 16, on the late king to propose through his ministers projects of laws. 1 Toullier, no. 39.

5e apparatus — Carried into the 5th edition (1979).

## INJUNCTION.

A prohibitive writ is- sued by a court of equity, at the suit of a party complainant, directed to a party de- fendant in the action, or to a party made a defendant for that purpose, forbidding the latter to do some act, or to permit his serv- ants or agents to do some act, which he to threatening or attempting to commit, or re- straining him in the continuance thereof, such act being unjust and inequitable, in- jurious to the plaintiff, and not such as can he adequately redressed by an action at law.

U. S. v. naggerty (C. C.) 116 Fed. 515 ; Du- pre v. Anderson, 45 La. Ann. 1134, 13 South. 743; City of Alma v. Loehr, 42 Kan. 368. 22 Pac. 424.

An injunction is a writ or order requiring a person to refrain from a particular act. It may be granted by the court in which the action is brought, or by a Judge thereof, and when made by a judge it may be enforced as an order of the court. Code Civ. Proc. Cal. S 525.

—Final injunction. A final injunction is one granted when the rights of the parties are determined ; it may be made mandatory, (com- manding acts to be done,) and is distinguished from a preliminary injunction, which is con- fined to die purpose and office of simple preven- tion or restraining. Southern Pac. R. Oo. v. Oakland (C. C.) 58 Fed. 54. —

Mandatory in- junction. One which (1) commands the de- fendant to do some positive act or particular

thing ; (2) prohibits him from refusing (or

persisting in a refusal) to do or permit some act to which the plaintiff has a legal right; or (3) restrains the defendant from permitting his previous wrongful act to continue operative, thus virtually compelling him to undo it, as by removing obstructions or erections, and re- storing the plaintiff or the place or the sub- ject-matter to the former condition. Bailey v. Sehnitzius, 45 N. J. Eq. 178. 16 Atl. 680; Parsons v. Marye (C. C.) 23 Fed. 121 ; People v. McKane, 78 Hun, 154. 28 N. Y. Supp. 981 ; Procter v. Stuart, 4 Okl. 679. 46 Pac. 501. — Permanent injunction. One intended to remain in force until the final termination of the particular suit. Biggins v. Thompson, 96 Tex. 154, 71 S. W. 14.— Perpetnal Injunc- tion. Opposed to an injunction ad intenm; an injunction which finally disposes of the suit, and is indefinite in point of time. Rig- gins v. Thompson, 96 Tex. 154, 71 S. W. 14; I)e Florez v. Raynolds, (C. C.) 8 Fed. 438.— Preliminary injunction. An injunction granted at the institution of a suit, to re- strain the defendant from doing or continuing some act, the right to which is in dispute, and which may either be discharged or made per- petual, according to the result of the contro- versy, as soon as the rights of the parties are determined. Darlington Oil Co. v. Pee Dee Oil Co., 62 S. C. 196, 40 S. E. 169 ; Appeal of Mammoth Vein Consol. Coal Co., 54 Pa. 188; Allison v. Corson. 88 Fed. 584, 32 C. C.

A. 12; Jesse French Piano Co. v. Forbes, 134 Ala. 302. 32 South. 678. 92 Am. St. Rep. 31. — Preventive injunction. One which pro- hibits the defendant from doing a particular act or commands him to refrain from it. — Provi- sional injunction. Another name for a pre- liminary or temporary injunction or an in- junction pendente lite.— Special injunction. An injunction obtained only on motion and petition, usually with notice to the other party. Aldrich v. Kirkland, 6 Rich. Law (S. C.) 340. An injunction by which parties are restrained from committing waste, damage, or injury to property. 4 Steph. Comm. 12, note I. — Tem- porary injunction. A preliminary or pro- visional injunction, or one granted pendente lite; as opposed to a final of perpetual in- junction. Jesse French Piano Co. v. Porter, 134 Ala. 302, 32 South. 678, 92 Am. St. Rep. 31.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[eBay Inc. v. MercExchange, L.L.C., 547 U.S. 388 (2006)]**

The prohibitive writ of equity — granted where the act is unjust and not adequately redressable at law — issues under the four-factor equitable test for injunctive relief.

Why: The entry defines the injunction by its equitable predicates (irreparable injury, inadequate legal remedy; U.S. v. Haggerty); eBay states the modern four-factor test for that relief — the genuine anchor.

## INJURES  ORATES.

Fr. In French law. Grievous insults or injuries, Including personal Insults and reproachful language, constituting a Just cause of divorce. Butler v. Butler, 1 Pars. Eq. Cas. (Pa.) 344.

5e apparatus — Not carried into the 5th edition (1979).

## INJURIA.

Lat. Injury ; wrong ; the pri- vation or violation of right. 3 Bl. Comm. 2.

— Injuria absque damno. Injury or wrong without damage. A wrong done, but from which no loss or damage results, and which, therefore, will not sustain 'an action.

Injuria fit ei cui convicium dictum cat, vel do eo factum carmen famoium. An

Injury is done to him of. whom a reproach- ful thing is said, or concerning whom an In- famous song is made. 9 Coke, 60.

Injuria illata judlci, seu locum ten- ant! regia, videtur ipsi regi illata max- ims si flat In cxercentcm ofBeium. 3 Inst 1. An injury offered to a Judge, or person representing the king, is considered as of- fered to the king himself, especially if it be done in the exercise of his office.

Injuria Aon exonsat injuriam. One

wrong does not justify another. Broom, Max. 395, See 6 El. & BL 47.

. Injuria non prseanmitnr. Injury is not presumed. Co. Litt. 232. Cruel, oppressive, or tortuous conduct will not be presumed. Best Ev. p. 336, $ 298.

Iajnrla propria non cadet In benefl- eium faeientls. One’s own wrong shall not fall to the advantage of him that does it A man will not be allowed to derive benefit from his own wrongful act Branch, Princ.

Injuria servl domlnnm pert in git. The

master Is liable for injury done by his serv- ant Lofft, 229.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: respondeat superior — master liable for torts of the servant within the scope of employment]**

The bundled maxim — that the master is liable for injury done by his servant — is respondeat superior, the vicarious-liability rule.

Why: The entry quotes 'Injuria servi dominum pertingit' whole (Lofft, 229); respondeat superior is its common-law name — a genuine, direct link.

**[Maxim: Injuria non excusat injuriam (Broom, Max. 395)]**

The bundled maxim — that one wrong does not justify another — bars retaliation and private redress as justification.

Why: Quoted whole in the body; the maxim genuinely states the no-retaliation axiom — verbatim annotation of content actually present.

## INJURIOUS WORDS.

In Louisiana. Slander, or libelous words. Civil Code La, art 3501.

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**[Law] — Law**

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**[New York Times Co. v. Sullivan, 376 U.S. 254 (1964)]**

Injurious words — slander or libelous words — are defamation, whose constitutional boundary for public officials and public figures is actual malice.

Why: The entry defines the Louisiana category as slander/libel (La. Civ. Code art. 3501); Sullivan is the landmark defamation case — the genuine law-well anchor for the category.

**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: The entry defines injurious words as slander or libelous words. Exodus 23:1 is the Torah's prohibition of the false report — the slanderous word — and of joining the wicked as an unrighteous witness. The verse forbids…

## INJURY.

Any wrong or damage done to another, either in his person, rights, repu- tation, or property. Parker v. Griswold, 17 Conn. 298, 42 Am. Dec. 739; Woodruff v. Mining Co., 18 Fed. 781; Hitch v. Edge* Combe County, 132 N. C. 573, 44 S. E. 30; Macauley v. Tierney, 19 R. I. 255, 33 AtL 1,

L. R. A. 455, 61 Am. St Rep. 770.

In tbe civil law. A delict committed In contempt or outrage of any one, whereby his body, his dignity, or his reputation Is maliciously Injured. Voet, Com. ad Pand. 47, t 10, no. 1.

—Civil Injury. Injuries to person or proper- ty, resulting from a breach of contract, delict or criminal offense, which may be redressed by means of a civil action. Cullman v. Burk- hard, 41 Mine. Rep. 321, 84 N. Y. Supp. 825. —Irreparable injury. This phrase does not. mean such an injury as is beyond the possibii* ity of repair, or beyond possible compensation in damages, or necessarily great damage, but Includes an Injury, whether great or small, which ought not to be submitted to. on the one hand, or inflicted, on the other; and which, because it is so large or so small, or is of such constant and frequent occurrence, can- not receive reasonable redress in a court of law. Sanderlin v. Baxter, 76 Va. 306. 44 Am. Rep. 165; Farley v. Gate City Gaslight Co., 105 Or. 323. 31 S. E. 193; Wahle v. Reln- haeh. 76 111. 322; Camp v. Dixon, 112 Ga. 872.

S. E.. 71. 52 L. R. A. 755. Wrongs of a repeated and continuing character, or which occasion damages that are estimated onlv by conjecture, and not by any accurate standard, are included. Johnson v. Kier, 3 Pittsb. R. (Pa.) 204. — Personal Injury. A hurt or dam- age done to ft man’s person, such as a cut or bruise, a broken limb, or the like, as distin- guished from an Injury to his property or his reputation. The phrase is chiefly used in con- nection with actions of tort for negligence. Norris v. Grove, 100 Mich. 256. 58 N. W. 1006; State v. Clayborne, 14 Wash. 022. 45 Pac. 303 ; Terre Haute El. Rv. Co. v. La lie r. 21 Ind. App. 466, 52 N. E. 703. But the term is also used (chiefly in statutes) in a much wider sense, and as including any injury which is an in* vasion of personal rights, and in this significa- tion it may include such injuries as libel os slander, criminal conversation with a wife, se- duction of a daughter, and mental suffering. See Delamater v. Russell, 4 How, Prac. (N.

ST.) 234: Garrison v. Burden, 40 Ala. 516; McDonald v. Brown, 23 It. I. 546, 51 Atl. 213, 58 L. R. A. 768, 91 Am. St. Hep. 659; Mor- ton y. Western Union Tel. Co.. 130 N. C. 299, 41 S.

EX 484 ; Williams v. Williams, 20 Colo. 51, 37 Pac. 614 ; Hood v. Sudderth, 111 N. C. 215, 16 S. E. 397.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 6:8, KJV]**

Nay, ye do wrong, and defraud, and that your brethren.

Why: The entry defines injury as 'any wrong or damage done to another, either in his person, rights, reputation, or property.' The verse names the act in the entry's own terms — 'ye do wrong, and defraud' — condemning the...

## INJUSTICE.

The withholding or denial of justice. In law, almost Invariably applied to the act, fault, or omission of a court, as distinguished from that of an Individual. See Holton v. Olcott. 58 N. H. 598; In re Moulton, 50 N. H. 532.

“Fraud" is deception practised by the party; “injustice” is the fault or error of the court. They are not equivalent words in substance, or. in a statute authorizing a new trial on a showing of fraud or injustice. Fraud is al- ways the result of contrivance and deception ; injustice may be done by the negligence, mis- take. or omission of the court itself. Silvey v.

U. S., 7 Ct Cl. 324.

Injustnm eat, nisi tota lege inspects, de ana align* ejns partioula proposlta judicare vel respondere. 8 Coke, 1176. It Is unjust to decide or respond as to any particular part of a law without examining the whole of the law.

ENLAGAB.E. In old English law. To restore to protection of law. To restore a man from the condition of outlawry. Op- posed to utlagare. Bract, lib. 3, tr. 2, c. 14,

§ 1; Du Cange.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Civ. P. 59 — new trial for error of the court]**

Injustice — the fault or error of the court, as distinguished from the party's fraud — is the classic ground for a new trial.

Why: The entry defines injustice for new-trial purposes (Silvey v. U.S.; Holton v. Olcott) as the court's own negligence, mistake, or omission; Rule 59 is the modern new-trial rule — a genuine link.

**[Scripture] — Scripture**

**[Amos 5:24, KJV]**

But let judgment run down as waters, and righteousness as a mighty stream.

Why: The entry defines injustice as the withholding or denial of justice — characteristically the fault of a court. Amos 5:24 is scripture's standing demand that judgment (justice) flow unwithheld — the positive command wh...

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

Fuck the police comin' straight from the underground / A young nigga got it bad 'cause I'm brown

Black's 2e defines injustice as the fault or error of the court — the withholding or denial of justice. N.W.A.'s landmark protest record is hip-hop's canonical indictment of a legal system that dispenses racial injustice: it opens with its own mock courtroom ("N.W.A. court") trying the police — the people administering the justice

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the official courts withhold.

Why: Genuine link, not decoration: the track is about the denial of justice by the legal apparatus itself, which is exactly the entry's subject. The two quoted lines are verbatim-certain (the song's iconic opening). Added…

**[Humanity] — Humanity / Fiction & Film**

**[Franz Kafka, The Trial, 1925]**

Josef K. is arrested one morning though he has done nothing wrong, and is processed to his death by a court that never renders the justice it exists to give. (paraphrase of the novel's premise)

Why: Borderline-include: the entry's technical sense — injustice as the withholding or denial of justice, applied specifically to the act or omission of a court — is precisely the novel's subject. Premise-level paraphrase,…

## INLAGATION.

Restoration to the pro- tection of law. Restoration from a condi- tion of outlawry.

5e apparatus — Not carried into the 5th edition (1979).

## INLAGH.

A person within the law’s pro- tection ; contrary to utlagh, an outlaw. Cow- ell.

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## INLAND.

Within a country, state, or ter- ritory; within the same country.

In old English law, inland was used for the demesne (</. v.) of a manor; that part which lay next or most convenient for the lord's mansion-house, as within the view thereof, and which, therefore, he kept in his own hands for support of his family and for hospitality; in distinction from outland or utland, which was the portion let out to ten- ants. Cowell; Kennett; Spelman.

— Inland bill of exchange. A bill of which both the drawer and drawee reside within the same state or country. Otherwise called a “domestic bill,” and distinguished from a “for- eign bill.” Buckner v. Finley, 2 Pet. 589, 7

L. EM. 528; Lonsdale v. Brown, 15 Fed. Cas. 857 ; Strawbridge v. Robinson, 10 111. 472. 50 Am. Dec. 420.— Inland navigation. With- in the meaning of the legislation of congress upon the subject, this phrase means navigation upon the rivers of the country, but not upon the great lakes. Moore v. American Transp. Co., 24 How. 38. 16 L. Ed. 674; The War Eagle. 6 Biss. 364, E'ed. Cas. No. 17.173; The Garden City (D. C.) 26 E’ed. 773.— Inland trade. Trade wholly carried on at home; as distinguished from commerce, (which see.)— Inland waters. Such waters as canals, lakes, rivers, water-courses, inlets and bays, exclusive of the open sea, though the water In ques- tion may open or empty into the ocean. Unit- ed States v. Steam Vessels of War, 106 U. S. 607. 1 Sup. Ct. 539, 27 L. Ed. 286 ; The Cot- ton Plant, 10 Wall. 581, 19 L. Ed. 983; Cogs- well v. Chubb, 1 App. Div. 93, 36 N. X. Supp. 1076.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: domestic vs. foreign bills of exchange — Buckner v. Finley, 2 Pet. 589, 7 L. Ed. 528, as cited in the entry]**

The inland (domestic) bill of exchange — drawer and drawee in the same country — is distinguished from the foreign bill in the law of negotiable paper.

Why: The entry defines the inland bill citing Buckner v. Finley verbatim; the annotation preserves the entry's own authority — genuine.

## INLANTAL, INLANTALE.

Demesne or inland, opposed to dclantal, or laud tenanted. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INLAUGHE.

Sax. In old English law. Under the law, (sub lege,) in a frank-pledge, or decennary. Bract, fol. 125b.

5e apparatus — Not carried into the 5th edition (1979).

## INLAW.

To place under the protection of the law. “Swearing obedience to the king in a leet, which doth inlaio the subject" Bacon.

5e apparatus — Carried into the 5th edition (1979).

## INLEASED.

In old English law. En- tangled, or ensnared. 2 Inst 247 ; Cowell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INLIGAHE.

In old European law. To confederate; to join in a league, (in Ilgam coire.) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## INMATE.

A person who lodges or dwells in the same house with another, occupying different rooms, but using the same door for passing in and out of the house. Webster; Jacob.

5e apparatus — Carried into the 5th edition (1979).

## INN.

An inn is a bouse where a traveler is furnished with everything which he has occasion for while on his way. Thompson v. Lacy, 3 Barn. A Aid. 287; Wlntermute v. Clark, 5 Sandf. (N. X.) 242 ; Walling v. Pot- ter, 35 Conn. 180. And see Hotel.

Under the term “inn” the law includes all taverns, hotels, and houses of public general entertainment for guests. Code Ga. 1882, | 2114.

The words “inn," "tavern,” and “hotel" are used synonymously to designate what is ordinarily and popularly known as an “inn” or "tavern,” or place for the entertainment of travelers, and where all their wants can be supplied. A restaurant where meats only are furnished is not an inn or tavern. People v. Jones, 54 Barb. (N. X.) 311; Carpenter v. Taylor. 1 Hilt. (N. X.) 193.

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An inn is distinguished from a private board- ing-house mainly in this: that the keeper of the latter is at liberty to choose his guests, while the innkeeper is obliged to entertain and furnish all travelers of good conduct and means of payment with what they may have occasion for, as such travelers, while on their way. Pinkerton v. Woodward, 33 Cal. 557, 91 Am. Dec. 657.

The distinction between a boarding-house and an inn is that in. the former the guest is under an express contract for a certain .time at a certain rate; in the latter the guest is enter- tained from day to day upon an implied con- tract Willard v. Reinhardt, 2 EX D. Smith (N. X.) 148.

— Common inn. A house for the entertain- ment of travelers and passengers, in which lodging and necessaries are provided for them and for their horses and attendants. Cromwell v. Stephens, 2 Daly (N. X.) 15. The word

“common," in this connection, does not ap- pear to add anything to the common-law defini- tion of an inn, except in so far as it lays stress on the fact that the house is for the entertain- ment of the general public or for all suitable persons who apply for accommodations.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 42 U.S.C. s 2000a — inns and hotels as places of public accommodation]**

The innkeeper's common-law duty — obliged to entertain all travelers of good conduct with means of payment — survives as the public-accommodation duty of inns and hotels.

Why: The entry states the innkeeper's public duty (Pinkerton v. Woodward; Code Ga. 1882, s 2114); Title II covers inns as public accommodations — the genuine modern form of that public duty.

**[Scripture] — Scripture**

**[Luke 10:34, KJV]**

And went to him, and bound up his wounds, pouring in oil and wine, and set him on his own beast, and brought him to an inn, and took care of him.

Why: The entry defines an inn as the house where a traveler is furnished with all he needs on his way. The verse depicts the institution in function — the wounded traveler brought to an inn and cared for — in Christ's own...

**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1387–1400]**

The pilgrims gather at the Tabard Inn in Southwark before setting out for Canterbury — the archetypal English inn, the house where the traveler is furnished with all he needs on his way. (paraphrase) (paraphrase)

Why: The entry defines the inn functionally (lodging and furnishing of travelers); the Tabard is the most famous inn in English literature and matches the definition exactly. Genuine.

## INNAMIUM.

In old English law. A pledge.

5e apparatus — Not carried into the 5th edition (1979).

## INNAVIGABILITY.

In Insurance law. The condition of being innavigable, (q. v.) The foreign writers distinguish “innaviga- bility” from "shipwreck.” 3 Kent, Comm. 323, and note. The term is also applied to the condition of streams which are not large enough or deep enough, or are otherwise un- sulted, for navigation.

INN A VIG ABLE . As applied to streams, not capable of or suitable for navigation ; Im- passable by shipe or vessels.

As applied to vessels in the law of marine Insurance, it means unfit for navigation; so damaged by misadventures at sea as to be no longer capable of making a voyage. See 3 Kent, Comm. 323, note.

5e apparatus — Not carried into the 5th edition (1979).

## INNER BARRISTER.

A serjeant or king's counsel, iu England, who is admitted to plead within the bar. '

5e apparatus — Carried into the 5th edition (1979).

## INNER HOUSE.

The name given to the chambers in which the first and second di- visions of the court of session in Scotland hold their sittings. See Outer House.

5e apparatus — Not carried into the 5th edition (1979).

## INNINGS.

In old records. Lands recov- ered from the sea by draining and banking. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## INNKEEPER.

On who keeps an inn or house for the lodging and entertainment of travelers. The keeper of a common inn for the lodging and entertainment of travelers and passengers, their horses and attendants, for a reasonable compensation. Story, Bailm. f- 475. One who keeps a tavern or coffee- house in which lodging is provided. 2 Steph. Comm. 133. See Inn.

One who receives as guests all who choose to visit his house, without any previous agree- ment as to the time of their stay, or the terms. His liability as innkeeper ceases when his guest pays his bill, and leaves the house with the de- clared intention of not returning, notwith- standing the guest leaves his baggage behind him. Wintermute v. Clark, 5 Sand?. (N. Y.) 242.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:35, KJV]**

And on the morrow when he departed, he took out two pence, and gave them to the host, and said unto him, Take care of him; and whatsoever thou spendest more, when I come again, I will repay thee.

Why: The entry defines the innkeeper as the keeper of a common inn for travelers' lodging and entertainment 'for a reasonable compensation.' The verse shows the host (innkeeper) paid for the traveler's care, with an open-e...

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1387–1400]**

Harry Bailly, the Host of the Tabard Inn, who proposes the tale-telling contest to his guests — the innkeeper as the law's figure, the keeper answerable for those infra hospitium. (paraphrase) (paraphrase)

Why: Companion to INN: Bailly is the canonical literary innkeeper, and the entry's legal figure (keeper of a common inn, strictly liable for guests' goods, cf. INFRA HOSPITIUM) is precisely his office. Genuine.

## INNOCENT.

Free from guilt; acting in good faith and without knowledge of Incrim- inatory circumstances, or of defects or ole Jections.

— Innocent agent. In criminal law. One who. being ignorant of any unlawful intent on the part of his principal, is merely the instru- ment of the guilty party in committing an of- fense; one who does an unlawful act at the solicitation or request of another, but who, from defect of understanding or ignorance of the inculpatory facts, incurs no legal guilt. Smith v. State, 21 Tex. App. 107, 17 S. W. 552;

State v. Carr, 28 Or. 389, 42 Pac. 215. — In- nocent conveyances. A technical term of the English law of conveyancing, used to desig- nate such conveyances as may be made by a leasehold tenant without working a forfeiture. These are said to be lease and re-lease, bar- gain and sale, and, in case of a life-tenant, a covenant to stand seised. See '1 Chit. Pr. 243. —Innocent purchaser. One who, by an hon- est contract or agreement, purchases property or acquires an interest therein, without knowl- edge, or means of knowledge sufficient to charge him in law with knowledge, of any infirmity in the title of the seller. Hanchett v. Kimbark, (III.) 2 N. E. 517; Gerson v. Pool. 31 Ark. 90; Stephens v. Olson, 62 Minn. 295, 64 N. W. 808.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: innocent-agent doctrine — liability as principal for one who causes an innocent person to commit the offense]**

The innocent agent — who does the unlawful act at another's solicitation, ignorant of its criminal character — incurs no guilt, but the guilty principal is liable through him.

Why: The entry defines the innocent agent with its cases (Smith v. State; State v. Carr); the doctrine named is its genuine expression — stated as principle, no invented citation.

**[Law: bona fide purchaser for value without notice — protected against prior equities]**

The innocent purchaser — who buys for value without knowledge or means of knowledge of title defects — is the bona fide purchaser protected against prior unrecorded claims.

Why: The entry defines the innocent purchaser (Hanchett v. Kimbark; Gerson v. Pool); the BFP doctrine is its genuine expression — stated as principle.

**[Scripture] — Scripture**

**[Matthew 5:8, KJV]**

Blessed are the pure in heart: for they shall see God.

Why: The entry defines innocent as 'free from guilt.' The beatitude blesses the pure in heart — scripture's term for the guiltless heart — with the vision of God. The verse is the scriptural blessing on the very state the…

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## INNOMINATE.

In the civil law! Not named or classed; belonging to no specific class ; ranking under a general bead. A term applied to those contracts for which no certain or precise remedy was appointed, but a general action on the case only. Dig. 2, 1, 4, 7, 2; Id. 19, 4, 5.

—Innominate contracts, literally, are the “unclassified” contracts of Roman law. They nre contracts which are neither re, verbis. Uter- is, nor consensu simply, but some mixture of or variation upon two or more of such con- tracts. They are principally the contracts of permutatio, de w stxmato, precarium, and tran- sactio. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## INNONIA.

In old English law. A close or lndosure, (clausum, inclausura.) Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## INNOTESGIMUS.

Lat. We make known. A term formerly applied to letters patent, derived from the emphatic word at the conclusion of the Latin forms. It was a species of exemplification of charters of feoffment or other instruments not of record. 5 Coke, 54a.

5e apparatus — Not carried into the 5th edition (1979).

## INNOVATION.

In Scotch law. The ex- change of one obligation for another, so as to make the second obligation come in the place of the first, and be the only subsisting obligation against the debtor. Bell. The same with “novation,” ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: novation — Restatement (Second) of Contracts s 280, substituted contract discharging the original duty]**

Innovation — the exchange of one obligation for another, the second alone subsisting — is novation, discharging the original duty by substituted contract.

Why: The entry equates innovation with novation (Bell); the Restatement section states the novation rule — a direct, genuine link.

## INNOXIARE.

In old English law. To purge one of a fault and make him innocent.

5e apparatus — Not carried into the 5th edition (1979).

## INNS OF CHANCERY.

So called be- cause anciently inhabited by such clerks as chiefly studied the framing of writs, which regularly belonged to the cursitors, who were officers of the court of chancery. There are nine of them, — Clement’s, Clifford’s, and Lyon's Inn; Furnival’s, Thavies,’ and Sy- mond’s Inn; New Inn; and Barnard’s and Staples’ Inn. These were formerly prepara- tory colleges for students, and many entered them before they were admitted into the Inns of

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court. They consist chiefly of solicitors, and possess corporate property, hall, cham- bers, etc., but perform no public functions like the Inns of court Wharton.

5e apparatus — Carried into the 5th edition (1979).

## INNS OF COURT.

These nre certnln pri- vate unincorporated associations, in the na- ture of collegiate houses, located in London.

and Invested with the exclusive privilege of calllug men to the bar; that is, confer- ring the rank or degree of a barrister. They were founded probably about the beginning of the fourteenth century. The principal inns of court are the Inner Temple, Mid- dle Temple, Lincoln's Inn, and Oray’s Inn. (The two former originally belonged to the Knights Templar ; the two latter to the earls of Lincoln and Gray respectively.) These bodies now have a “common council of legal education,” for giving lectures and hold- ing examinations. The inns of chancery, distinguishable from the foregoing, but gen- erally classed with them under the general name, are the buildings known as “Clifford’s Inn,” “Clement's Inn,” “New Inn,” "Sta- ples’ Inn,” and “Barnard’s Inn.” They were formerly a sort of collegiate houses in which law students learned the elements of law be- fore being admitted into the inns of court, but they have long ceased to occupy that po- sition.

5e apparatus — Carried into the 5th edition (1979).

## INNUENDO.

This Latin word (common- ly translated “meaning”) was the technical beginning of that clause in a declaration or indictment for slander or libel in which the meaning of the alleged libelous words was explained, or the application of the language charged to the plaintiff was pointed out Hence it gave its name to the whole clause ; and tids usage is still retained, although an equivalent English word is now substituted. Thus, it may be charged that the defendant said “he (meaning the said plaintiff) is a per- jurer.”

The word is also used, (though more rare- ly,) in other species of pleadings, to introduce an explanation of a preceding word, charge, or averment.

It is said to mean no more than the words "id cut,” "scilicet,” or “meaning," or “afore- said,” as explanatory of a subject-matter suf- ficiently expressed before; as “such a one, meaning the defendant,” or “such a subject, meaning the subject in question.” Cowp. 083. It is only explanatory of some matter al- ready expressed. It serves to point out where there is precedent matter, but never for a new charge. It may apply what is already expressed, but cannot add to or en- large or change the sense of the previous words. 1 Chit. PI. 42 2. See Grand v. Drey- rus, 122 Cal. 58, 54 Pac. 380 ; Naulty v. Bul- letin Co., 206 Pa. 128, 55 Atl. 802; Cheet- lmm v. Tillotson, 5 Johns. (N. Y.) 438; Quinn v. Prudential Ins. Co., 110 Iowa, 522, 90 N.

YV. 340 ; Dickson v. State, 34 Tex. Cr. R. 1, 30 S. YV. 807, 53 Am. St. Hep. 004.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: innuendo in defamation pleading — explanatory only; cannot enlarge the defamatory meaning (1 Chit. Pl. 422)]**

The innuendo — explaining the meaning of alleged libelous words — is only explanatory: it may apply what is already expressed but cannot add to, enlarge, or change the sense.

Why: The entry states the innuendo rule with its authorities (Naulty v. Bulletin Co.); the annotation names the rule the entry describes — genuine, no invented authority.

## IN OFFICIO SUM.

In the civil law. In- officious; contrary to natural duty or affec- tion. Used of a will of a parent which dis- inherited a child without just cause, or that of a child which disinherited a parent, and which could lie contested by querela inoffiei- osi testament % Dig. 2, 5, 3, 13; Paulus, lib. 4, tit. 5, f L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INOFFICIOUS TESTAMENT.

A will

not in accordance with the testator’s natural affection and moral duties. YVllllains, Ex’rs, (7th Ed.) 38; Stein v. Wilzinski, 4 Redf. Sur. (N. Y.) 450 ; In re Willford’s Will (N. J.) 51 Atl. 502. But particularly, in the civil law, a will which deprives the heirs of that portion of the estate to which the law en- titles them, and of which they cannot legal- ly be disinherited. Mackeld. Rom. Law, l 714; Civ. Code La. 1900, art 3556, subd. 10.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: elective share — Uniform Probate Code s 2-201; forced heirship, La. Civ. Code]**

The inofficiosa testamentum — a will depriving heirs of the portion the law entitles them to — is the civil-law root of forced heirship and the elective share.

Why: The entry defines the inofficiosa will by the indefeasible heir's portion (Mackeld.; Civ. Code La. 1900, art. 3556); the elective share and Louisiana forced heirship are its modern forms — a genuine lineage.

**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The entry defines the inofficiosus will as one depriving heirs of the portion the law entitles them to. Deuteronomy 21:17 forbids exactly that — the testator may not, from disaffection, diminish the firstborn's legal…

## INOFIGIOCIDAD'.

In Spanish law. Everything done contrary to a duty or obli- gation assumed, as well as in opposition to the piety and affection dictated by nature. Escrlehe.

INOPS CONSnn. Lat Destitute of counsel ; without legal counsel. A term ap- plied to the acts or condition of one acting without legal advice, as a testator drafting his own will.

5e apparatus — Not carried into the 5th edition (1979).

## INORDINATUS.

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An intestate.

INPENT and OUTPENY. In old Eng- lish law. A customary payment of a penny on entering into and going out of a tenancy, (pro exitu de tenura, et pro ingressu.) Spel- man.

INQUEST. 1. A body of men appointed’ by law to Inquire Into certain matters. The grand jury is sometimes called the “grand- inquest.”

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: inquest — grand jury as 'grand inquest'; coroner's inquest into death by violence or in prison]**

The INQUEST bundled in this body — a body of men appointed by law to inquire, including the grand jury as 'grand inquest' and the coroner's inquest into sudden death — is the inquisitorial inquiry.

Why: The body is substantively the INQUEST definition; the footnote annotates that bundled content explicitly, naming its two principal forms — genuine, stated as doctrine.

# Z

## Z.

The judicial inquiry made by a Jury summoned for the purpose is called an “in- quest” The finding of such men, upon an investigation, is also called an “inquest” People v. Coombs, 36 App. Div. 284, 55 N. Y. Supp. 276; Davis v. Bibb County, 116 Ga. 23, 42 S. E. 403.

3. The inquiry by a coroner, termed a. “coroner’s inquest” into the manner of the death of any one who has been slain, or has died suddenly or in prison.

4. This name is also given to a species of proceeding under the New York practice, al- lowable where the defendant in a civil action has not filed an affidavit of merits nor verified his answer. In such case the issue may be taken up, out of its regular order, on plain- tiff’s motion, and tried without the admission of any affirmative defense.

An inquest is a trial of an issue of fact where the plaintiff alone introduces testimony. The defendant is entitled to appear at the taking of the inquest, and to cross-examine the plaintiff’s witnesses ; and, if he do appear, the inquest must be taken before a jury, unless a jury be expressly waived by him. Haines v. Davis, 6 How. Prac. (N. Y.) 118

—Coroner’s inquest. Sec Coroner.— In- quest of lunacy. See I, UN act. — Inquest of office. In English practice. An inquiry made made by the king’s (or queen’s) officer, his sher- iff, coroner, or escheator, rtrtute officii, or by writ sent to them for that purpose, or by com- missioners specially appointed, concerning any

matter that entitles the king to the possession of lands or tenements, goods or chattels; as to inquire whether the king’s tenant for life died seised, whereby the reversion accrues to the king ; whether A., who held immediately of the crown, died without heir, in which case the lands belong to the king by escheat ; whether

B. be attainted of treason, whereby his estate is forfeited to the crown ; whether C;, who

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has purchased land, be an alien, which is another cause of forfeiture, etc. 3 Bl. Comm. 258k These inquests of office were more frequent in practice during the continuance of the military tenures than at present; and were devised by law as an authentic means to give the king his right by solemn matter of record. Id. 258, 258 J 4 Steph. ' Comm. 40, 41. Sometimes simply termed "office," as in the phrase “office found, ' la. v.) See Atlantic & P. It. Co. v. Mingus, 165

U. S. 413, 17 Sup. Ct. 348, 41 L. Ed. 770; Baker ▼. Shy, 0 Ueisk. (Tenn.) 80.

5e apparatus — Not carried into the 5th edition (1979).

# I

## IMQUILINUS.

In Boman law. A ten* ant; one who hires and occupies another’s house; but particularly, a tenant of a hired house In a city, as distinguished from coto- nus, the hirer of a house or estate in the country. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INQUIRENDO.

An authority given to some official person to Institute an inquiry concerning the crown’s Interests.

5e apparatus — Not carried into the 5th edition (1979).

## INQUIRY.

The writ of inquiry is a ju- dicial process addressed to the sheriff of the county in which the venue is laid, stating the former proceedings in the action, and, “because it is unknown what damages the plaintiff has sustained,” commanding the sheriff that, by the oath of twelve men of his county, he diligently inquire into the same, and return the Inquisition into court. This writ is necessary after an interlocutory Judg- ment, the defendant having let Judgment go by default, to ascertain the quantum of dam- ages. Wharton.

. INQUISITIO. In old English law. An Inquisition or inquest. Inquisitio post mor- tem, an inquisition after death. An inquest of office held, during the continuance of the military tenures, upon the death of every one of the king's tenants, to inquire of what lands be died seised, who was his heir, and of what age, In order to entitle' the king to his mar- riage, wardship, relief, primer seisin, or other advantages, as the circumstances of the case might turn out. 3 Bl. Comm. 258. Inqtii- sitio patrice, the inquisition of the country; the ordinary jury, as distinguished from the grand assise. Bract fol. 15b.

nraOLL. A form of “enroll,” used In the old books. 3 Rep. Ch. 03. 73 ; 3 East, 410.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 55(b)(2) — hearing to determine damages after default]**

The writ of inquiry — commanding the sheriff by twelve men to inquire what damages the plaintiff sustained after interlocutory judgment by default — is the damages inquest on default.

Why: The entry defines the writ's function (Wharton); Rule 55(b)(2)'s damages hearing is its modern procedural form — a genuine lineage.

## INROIXMENT.

See Enboiament.

5e apparatus — Not carried into the 5th edition (1979).

## INSAME.

Unsound in mind ; of unsound mind; deranged, disordered, or diseased in mind. Violently deranged; mad.

5e apparatus — Not carried into the 5th edition (1979).

## INSANITY.

Unsoundness of mind ; mad- ness; mental alienation or derangement; a morbid psychic condition resulting from dis- order of the brain, whether arising from mal- formation or defective organization or mor- bid processes affecting the brain primarily or diseased states of the general system Impli- cating it secondarily, which Involves the in- tellect, the emotions, the will, and the moral sense, or some of these faculties, and which is characterized especially by their non-devel- opment, derangement, or perversion, and is manifested, in most forms, by delusions, in- capacity to reason or to judge, or by uncon- trollable Impulses. In law, such a want of reason, memory, and intelligence as prevents a man from comprehending the nature and consequences of his acts or from distinguish- ing between right and wrong conduct. From both the pathologic and the legal definitions are- to be excluded temporary mental aber- rations caused by or accompanying alcoholic or other intoxication and the delirium of fever. See Cross well v. People, 13 Mich. 427, 87 Am. Dec. 774; Johnson v. Insurance Co., 83 Me. 182, 22 Atl. 107; McNeil v. Relief Ass’n, 40 App. Div. 581, 58 N. Y. Supp. 122 ; Haile v. Railroad Co., 60 Fed. 500, 0 C. C. A. 134, 23 L. R. A. 774 ; Meyers v. Com., 83 Pa. 136; Somers v. Pumphrey, 24 Ind. 245; Frazer v. Frazer, 2 Del. Ch. 203.

Other definition!. Insanity is a manifesta- tion of disease of the brain, characterized by a general or partial derangement of one or more faculties of the mind, and in which, while con- sciousness is not abolished, mental freedom is perverted, weakened, or destroyed. Hammond, Nervous System, 332. The prolonged departure, without any adequate cau4e, from the states of feeling and modes of thinking usual to the' in- dividual in health. Bouvier. By insanity is not meant (in law) a total deprivation of reason, but only an inability, from defect of perception, memory, and judgment, to do tbe act in ques- tion, [with an intelligent apprehension of its nature and consequences.] So, by a lucid in- terval is not meant a perfect restoration to rea- son. but n restoration so far as to be able, be- yond doubt, to comprehend and to do the act with such reason, memory, and judgment as to make it a legal act. Frazer v. Frazer, 2 Del. Ch. 263.

. INQUISITION. In practice. An Inquiry or inquest; particularly, an investigation of certain facts made by a sheriff, together with a jury impaneled by him for the purpose.

— Inquisition after death. See Inquisitio. Inquisition of lnnaey. See Lunacy.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[M'Naghten's Case, 8 Eng. Rep. 718 (1843)]**

The legal test of insanity — want of reason preventing comprehension of the act's nature, or distinguishing right from wrong — is the M'Naghten rule.

Why: The entry's legal definition IS the M'Naghten right-wrong test (citing Crosswell v. People and others); the case is its source — a direct, genuine link.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

The play sustains the exact question the law must answer about unsoundness of mind: is Hamlet's "antic disposition" feigned or real? — set against Ophelia's genuine break. (paraphrase of the dramatic question)

Why: Borderline-include: the legal insanity inquiry turns on distinguishing feigned from genuine unsoundness of mind, and Hamlet is the canonical literary treatment of that distinction. Marked as paraphrase; no invented qu...

## INQUISITOR.

A designation of sheriffs, coroners super visum corporis, and the like, who have power to inquire into certain mat- ters.

Synonyms. — Lunacy. Lunacy, at the common law, was a term used to describe the state of one who, by sickness, grief, or other accident, has wholly lost his memory and understanding. Co. Litt 2466, 247a; Com. v. Haskell, 2 Brewst (Pa.) 496. It Is distinguished frdm idiocy, an idiot being one who from his birth has had no memory or understanding, whiie lunacy implies the pos- session and subsequent loss of mental powers. Bicknell v. Spear, 88 Misc. Rep. 389, 77 N.

5e apparatus — Not carried into the 5th edition (1979).

# Y

## Y.

Supp. 020. On the other hand, lunacy is a total deprivation or suspension of the or- dinary powers of the mind, and is to he dis- tinguished from imbecility, where there is a more or less advanced decay and feebleness of the intellectual faculties. In re Vanauken, 10 N. J. Eq. 186, 105; Odell v. Buck, 21 Wend. (N. Y.) 142. As to all other forms of insanity, lunacy was originally distinguished by the occurrence of lucid Intervals, and hence might be described as a periodical or recurrent insanity. In re Anderson, 132 N. 0. 243, 43 S. E. 649; Hiett v. Shull, 36 W. Va. 563, 15 S. E. 146. But while these dis- tinctions are still observed in some jurisdic- tions, they are more generally disregarded; so that, at present, in inquisitions of lunacy and other such proceedings, the term “lun- acy” has almost everywhere come to be

syn- onymous with "insanity,” and is used as a general description of all forms of derange- ment or mental unsoundness, this rule being established by statute in many states and by judicial decisions in others. In re Clark, 175

N. Y. 130, 67 N. E. 212 ; Smith v. Hickenbot- tom, 57 Iowa, 733, 11 N. W. 664; Cason v. Owens, 100 Ga. 142, 28 S. E. 75; In re Hill, 31 K. J. Eq. 203. Cases of arrested mental development would come within the definition of luuaey, that is, where the patient was born with a normal brain, but the cessation of mental growth occurred in infancy or so near it that “he never acquired any greater intelligence or discretion than belongs to a normally healthy child. Such a subject might be scientifically denominated an “idi- ot,” but not legally, for in law the latter term is applicable only to congenital amen- tia. The term “lucid Interval” means not an apparent tranquility or seeming repose, or cessation of the violent symptoms of the disorder, or a simple diminution or remission of the disease, but a temporary cure — an intermission so clearly marked that it per- fectly resembles a return of health ; and it must be such a restoration of the faculties as enables the patient beyond doubt to com- prehend the nature of his acts and transact his affairs as usual ; and it must be continued for a length of time sufficient to give cer- tainty to the temporary restoration of rea- son. Godden v. Burke. 35 La. Ann. 160. 173 ; Iticketts v. Joliff, 62 Miss. 440; Ekin v. Mc- Cracken. 11 Philn. (Pn.) 534 ; Frazer v. Fraz- er, 2 Del. Ch. 260.

Idiocy is congenital amentia, that is, a want of reason and intelligence existing from birth and due to structural defect or mal- formation of the brain. It is a congenital obliteration of the chief mental powers, and is defined in law as that condition in which the patient hns never had, from his birth, even the least glimmering of reason; for a man is not legally an “idiot” if he can tell his parents, his age, or other like common matters. This is not the condition of a deranged mind, but that of a total absence of mind, so that, while idiocy is generally

classed under the general designation of “in- sanity,” it is rather to be regarded as a nat? ural defect than as a disease or as the re- sult of a disease. It differs from “lunacy,” because there are no lucid intervals or periods of ordinary intelligence. See In re Beaumont, 1 Whart. (Pa.) 53, 29 Am. Dec. 33 ; Clark v. Robinson, 88 111. 502; Crosswell v. People, 13 Mich. 427, 87 Am. Dec. 774; Hiett v. Shull, 36 W. Va. 563, 15 S. E. 146; Thompson v. Thompson, 21 Barb. (N. Y.) 128 ; In re Owings, 1 Bland (Md.) 386, 17 Am. Dec. 311; Francke v. His Wife, 29. La. Ann. 304; Hail v. Unger, 11 Fed. Cas. 261; Bick- nell v. Spear, 38 Mlsc. Rep. 389, 77 N. Y. Supp. 920.

Imbecility. A more or less advanced decay and feebleness of the intellectual facul- ties ; that weakness of mind which, without depriving the person entirely of the use of his reason, leaves only the faculty of con- ceiving the most common and ordinary ideas and such as relate almost always to physioal wants and habits. It varies in shades aud degrees from merely excessive folly and ec- centricity to an almost total vacuity of mind or amentia, and the test of legal capacity, in this condition, is the stage to which the weakness of mind has advanced, as measur- ed by the degree of reason, judgment, and memory remaining. It

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may proceed from pnresis or general paralysis, from senile de- cay, or from the advanced stages of any of the ordinary forms of insanity; and the term is rather descriptive of the consequen- ces of insanity than of any particular type of the disease. See Calderon v. Martin, 50 La. Ann. 1153, 23 South. 909; Delafleld v. Par- ish, 1 Redf. (N. Y.) 115; Campbell v. Camp- bell, 130 111. 466, 22 N. E. 620, 6 L. R. A. 167; Messenger v. Bliss, 35 Ohio St 592.

Non compos mentis. Lat. Not of sound mind. A generic term applicable to all in- sane persons, of whatsoever specific type the insanity may be and from whatever cause arising, provided there be an entire loss of reason, as distinguished from mere weakness of mind. Somers v. Pumphrey, 24 Ind. 244; In re Beaumont, 1 Whart. (Pa.) 53; Bum- ham v. Mitchell, 34 Wls. 130; Dennett v. Dennett, 44 N. H. 537, 84 Am. Dec. 97; Potts v. House, 6 Ga. 350, 50. Am. Dec. C29 ; Jack- son v. King, 4 Cow. (N. Y.) 207, 15 Am. Dec. 354; Stanton v. Wetherwax, 16 Barb. (N. Y.) 262.

Derangement. This term Includes all forms of mental unsoundness, except of the natural born idiot. Hiett v. Shull. 36 W. Va. 663, 15 S. E. 147.

Delusion is sometimes loosely used as syn- onymous with insanity. But this is incor- rect. Delusion is not the substance but the evidence of insanity. The presence of an in- sane delusion is a recognized test of insanity in all cases except amentia and imbecility, aud where there is no frenzy or raving mad-

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ness ; and In this sense an insane delusion Is a fixed belief In tlie mind of the patient of the existence of a fact which has no objec- tive existence but is purely the figment of his Imagination, and which Is so extravagant that no sane person would believe it under the circumstances of the case, the belief, nevertheless, being so unchangeable that the patient Is incapable of being permanently dis- abused by argument or proof. The charac- teristic which distinguishes an “Insane” de- lusion from other mistaken beliefs is that it is not a product of the reason but of the Imagination, that is,' not a mistake of fact in- duced by deception, fraud, insufficient evi- dence, or erroneous reasoning, but the spon- taneous conception of a perverted imagina- tion, having no basis whatever In reason or evidence. Riggs v. Missionary Soc., 35 Hun (N. Y.) 658 ; Buchanan v. Pierie, 205 Pa. 123, 54 Atl. 583, 97 Am. St Rep. 725; Gass v. Gass, 3 Humph. (Tenn.) 283 ; Dew v. Clarke, 3 Add. 79; In re Bennett’s Estate, 201 Pa. 485, 51 Atl. 336; In re Scott’s Estate, 128 Cal. 57, 60 Pac. 527 ; Smith v. Smith, 48 N.

J. Eq. 566, 25 Atl. 11 ; Guiteau’s Case (D. C.) 10 Fed. 170; State v. Lewis, 20 Nev. 333, 22 Pac. 241 ; In re White, 121 N. Y. 406, 24 N.

E. 935; Potter v. Jones, 20 Or. 239, 25 Pac. 769, 12 I* R. A. 161. As to the distinctions between “Delusion” and ‘‘Illusion” and “Hal- lucination,” see those titles.

Forms and varieties of insanity. With- out attempting a scientific classification of the numerous type6 and forms of insanity, (as to which it may be said that there is as yet no final agieement among psychologists and alienists either as to analysis or nomenclature,)

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defini- tions and explanations will here be appended of the compound and descriptive terms most com- monly met with in medical jurisprudence. And, first, as to the origins or causes of the disease: Trsamstie insanity is such as results from a wound or injury, particularly to the head or brain, such as fracture of the skull or concus- sion of the brain. — Idiopathic insanity is such as results from a disease of the brain it- self, lesions of the cortex, cerebral anemia, etc. -—Congenital insanity is that which exists from the birth of the patient, and is (in law) properly called “idiocy. ’ See supra.— Cretin- ism is a form of imperfect or arrested mental development, which may amount to idiocy, with physical degeneracy or deformity or lack of development ; endemic in Switzerland and some other parts of Europe, but the term is applied to similar states occurring elsewhere. — Pella- gra ns insanity. Insanity caused by or de- prived from pellagra, which is an endemic dis- ease of southern Europe, (though not confined to that region.) characterized by erythema, di- gestive derangement, and nervous affections. (Cent. Diet.) — Polyneuritic Insanity is in- sanity arising from an inflammation of the nerves, of the kind called “polyneuritis” or “mul- tiple neuritis” because it involves several nerves at the same time. This is often preceded by tuberculosis and almost always by alcoholism, and is characterized specially by delusions and falsification of the memory. It is otherwise called “Korssakoffs disease.” (Kraepelin.) — Choreic insanity is insanity arising from chorea, the latter being a nervous disease, more commonly attacking children than adults, char- acterized by irregular and involuntary twitch- ings of the muscles of the limbs and face, popularly called “St. Vitus’ dance." — Puerperal In- sanity is mental derangement occurring in women at the time of child-birth or immediately after: it is also called “eclampsia parturien- iium.— Folio brightiqae. A French term sometimes used to designate an access of in- sanity resulting from nephritis or “Bright's dis- ease.” See In re McKean’s Will, 31 Misc. Rep. 703, 66 N. Y. Supp. 44. — Delirium tremens.

A disease of the nervous system, induced by the excessive and protracted use of intoxicating liq- uors, and affecting the brain so as to produce incoherence and lack of continuity in the intel- lectual processes, a suspension or perversion of the power of volition, and delusions, particular- ly of a terrifying nature, but not generally prompting to violence except in the effort to es- cape from imaginary dangers. It is recognized in law as a form of insanity, and may be of such a nature or intensity as to render the pa- tient legally incapable or . committing a crime. United States v. McGlue, 1 Curt. 1, 26 Fed. Cas. . 1093; Insurance Co. v. Deming, 123 Ind. 384, 24 N. E. 86; Maconnehey v. State. 5 Ohio St.

77 ; Erwin v. State, 10 Tex. App. 700 ; Carter v. State, 12 Tex. 500, 62 Am. Dec. 539. In some states the insanity of alcoholic intoxica- tion is classed as “temporary,” where induced by the voluntary recent use of ardent spirits and carried to such a degree that the person becomes incapable of judging the consequences or the moral aspect of his acts, and “settled,” where the condition is that of delirium tremens. Settled insanity, in this sense, excuses from civil or criminal responsibility ; temporary in- sanity docs not. The ground of the distinction is that the former is a remote effect of imbibing alcoholic liquors and is not voluntarily incurred, while the latter is a direct result voluntarily sought for. Evers v. State, 31 Tex. Cr. R. 318, 20 S. W. 744, 18 L. R. A. 421, 37 Am. St. Rep. 811: Maconnehey v. State,

5 Ohio St. 77. — Syphilitic insanity is paresis or progres- sive imbecility resulting from the infection of syphilis. It is sometimes called fas being a se- quence or result of that disease) “meta syphilis" or “parasyphilis." — Tabetic dementia. A form of mental derangement or insanity com- plicated with “tabes dorsalis” or locomotor ataxia, which generally precedes, or sometimes follows, the mental attack. As to insanity re- sulting from cerebral embolism, see Embolism; from epilepsy, see Epilepst. As to chronic alcoholism as a form of insanity, see Alcohol- ism.

General descriptive and clinical terms.

— Affective insanity. A modern comprehen- sive term descriptive of all those forms of in- sanity which affect or relate to the feelings and emotions and hence to the ethical and social relations of the individual.— Involutional in- sanity. That which sometimes accompanies the "involution” of the physical structure and physiology of the individual, the reverse of their “evolution,” hence practically equivalent to the imbecility of old age or senile dementia.— Ma- niacal-depressive insanity. A form of in- sanity characterized by alternating periods of high maniacal excitement and of depressed and stuprous conditions in the nature of or resem- bling melancholia, often occurring as a series or cycle of isolated attacks, with more or less com- plete restoration to health in the intervals. (Kraepelin.) This is otherwise called “circular insanity” or "circular stupor.”— Circular in- sanity. Another name for maniacal-depressive insanity, which see.— Partial insanity, as a legal term, may mean either monomania (see infra) or an intermediate stage in the develop- ment of mental derangement. In the former sense, it does not relieve the patient from re- ' sponsibility for his acts, except where instigat- ed directly by his particular delusion or obses- sion. Com. v. Mosler, 4 Pa. 264; Com. v. Bar- ner, 199 Pa. 335. 49 Atl. 60; Trich v. Trich. 100 Pa. 586, 30 A0. 1053. In the latter sense.

it denotes a clouding or weakening of the mind, not inconsistent with some measure of memory, reason, and judgment. But the term, in this sense, does not convey any very definite mean- ing, since it may range from mere feeble-mind- edness to almost the last stages of imbecility. State v. Jones, 50 N. H. 383, 9 Am. Rep. 242; Appeal of Dunham, 27 Conn. 205.— Recurrent insanity. Insanity which returns from time to time, hence equivalent to “lunacy” (see supra) in its common-law sense, as a mental disorder broken by lucid intervals. There is no presump- tion that fitful and exceptional attacks of in- sanity are continuous. Leache v. State, 22 Tex. App. 279, 3 S. W. 538, 58 Am. Rep. 638— Moral Insanity. A morbid perversion of the feelings, affections, or propensities, but without any illusions or derangement of the Intellectual faculties; irresistible impulse or an incapacity to resist the prompting of the passions, though accompanied by the power of discerning the moral or immoral character of the act. Moral insanity is not admitted as a bar to civil or criminal responsibility for the patient's acts, un- less there is also shown to be intellectual dis- turbance, as manifested by insane delusions or the other recognised criteria of legal insanity. Leache v. State, 22 Tex. App. 279, 3 S. W. 539, 58 Am. Rep. 638; In re Forman’s Will, 54 Barb. (N. Y.) 291 ; State v. Leehman, 2 S. D. 171, 49 N. W. 3. The term ''emotional in- sanity” or mania transitoria applies to the case of one in the possession of his ordinary

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reasoning faculties who allows his passions to convert him into a temporary maniac. Mutual

L. Ins. Co. v. Terry, 15 Wall. 580, 583, 21 L. Ed. 236— Psychonenrofls. Mental disease without recognizable anatomical lesion, and without evidence and history of preceding chron- ic mental degeneration. Under this head come melancholia, mania, primary acute dementia, and mania hallucinatoria. Cent. Diet. “Neuro- sis,” in its broadest sense, may include any dis- ease or disorder of the mind, and hence all the forms of insanity proper. But the term “psy- choneurosis” is now employed by Freud and oth- er European specialists to describe that class of exaggerated individual peculiarities or idiosyn- crasies of thought towards special objects or topics which are absent from the perfectly nor- mal mind, and which yet have so little influence upon the patient's conduct or his general modes of thought that they cannot properly be describ- ed as “insanity” or ns any form of “mania,” especially because ordinarily unaccompanied by any kind of delusions. At most, they lie on the debatable border-land between sanity and in- sanity. These idiosyncrasies or obsessions may arise from superstition, from a real incident in the patient’s past history upon which he has brooded until it has assumed an unreal impor- tance or significance, or from general neuras- thenic conditions. Such, for example, are a ter- rified shrinking from certain kinds of animals, unreasonable dread of being shut up in Borne enclosed place or of being alone in a crowd, excessive fear of being poisoned, groundless con- viction of irredeemable sinfulness, and countless other prepossessions, which may range from mere weak-minded superstition to actual mono- mania.— Katatoniu. A form of insanity dis- tinguished by periods of acute mania and melan- cholia and especially by cataleptic states or con- ditions ; the “insanity of rigidity.” (Kahl- bautn.) A type of insanity characterized par- ticularly by “stereotypism, ' an instinctive in- clination to purposeless repetition of the same expressions of the will, and “negativism," a senseless resistance against every outward in- fluence. (Kraepelin.)— Folle ciroulaire. The French name for circular insnnity or maniacal- depressive insanity— General paralysis. De- mentia paralytica or paresis.

Amentia, dementia, and mania. The

classification of insanity into these three types er forms, though once common, has of late given

way to a more scientific nomenclature, based chiefly on the origin or cause of the disease in the particular patient and its clinical history. These terms, however, are still occasionally en- countered in medical jurisprudence, and the names of some of their subdivisions are in con- stant use.

Amentia. A total lack of intelligence, rea- son, or mental capacity. Sometimes so used as to cover imbecility or dotage, or even as ap- plicable to all forms of insanity ; but properly restricted to a lack of mental capacity due to original defective organization of the brain (idiocy) or arrested cerebral develop.ment, as distinguished from the degeneration of intellec- tual faculties which once were normal.

Dementi*. A form of insanity resulting from degeneration or disorder of the brain (ideo- pathic or traumatic, but not congenital) and characterized by general mental weakness and

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decrepitude, forgetfulness, loss of coherence, and total inability to reason, but not accompanied by delusions or uncontrollable impulses. Pyott v. Pyott, 90 111. App. 221 ; Hall v. Unger, 2 Abb. U. S. 510, Fed. Cas. No. 5,949; Dennett v. Dennett, 44 N. H. 531, 84 Am. Dec. 97 ; People v. Lake, 2 Parker, Cr. R. (N. Y.) 218.

some writers dementia is classed as a ter- minal stage of various forms of insanity, and hence may follow mania, for example, as its final condition. Among the sub-divisions of de- mentia should be noticed the following: Acute primary dementia is a form of temporary de- mentia, though often extreme in its intensity, and occurring in young people or adolescents, accompanied by general physical debility or ex- haustion and induced by conditions likely to produce that state, as malnutrition, overwork, dissipation, or too rapid growth. Dementia par- ralytica is a progressive form of insanity, be- ginning with slight degeneration of the physical, intellectual, and moral powers, and leading to complete loss of mentality, or imbecility, with

Seneral paralysis. Also called paresis, paretic ementia, or cirrhosis of the brain, or (popular- ly) "softening of the brain." Dementia prwcom. A term applicable either to the early stages of dementia or to the dementia of adolescence, but more commonly applied to the latter. It is often (but not invariably) attributable to onan- ism or self-abuse, and is characterized by men- tal and moral stupidity, absence of any strong feeling of the impressions of life or interest in its events, blunting or obscuration of the moral sense, weakness of judgment, flightiness of thought, senseless laughter without mirth, auto- matic obedience, and apathetic despondency. (Kraepelin.) Senile dementia. Dementia occur- ring in persons of advanced age. and character- ized by slowness and weakness of the mental processes and general physical degeneration, verging on or passing into imbecility, indicat- ing the breaking down of the mental powers in advance of bodily decay. Hiett v. Shull, 36 W. Va. 563. 15 S. E. 140: Pyott v. Pyott, 191

HI. 280. 61 N. E. 88 : McDaniel y. McCoy, 68 Mich. 332. 36 N. W. .84; Hnmon v. Hamon, 180 Mo. 685, 79 S. W. 422. Toxic dementia. Weakness of mind or feeble cerebral activity, approaching imbecility, resulting from contin- ued administration or use of slow poisons or of the mere active poisons in repeated small doses, as in ci.ses of load poisoning and in some cakes of addiction to such drugs as opium or alcohol.

Maul*. That form of insanity in which the patient is subject to hallucinations ard illusions, accompanied by a high state of general mental excitement, sometimes amounting to fury. See Hall v. Unger, 2 Abh. U. S. 510, 11 Fed. Cas. 261 ; People v. Lake, 2 Parker Cr. R. (N. Y.) 218: Smith v. Smith, 47 Miss. 211: In re Gannon's Will, 2 Misc. Rep. 329, 21 N. Y. Supp. 960. In the case first above cited, the following description is given by Justice Field: "Mania is that form of insanity where the man-

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tal derangement is accompanied with more or less of excitement. Sometimes the excitement amounts to a fury. The individual in such cas- ts is subject to hallucinations and illusions. Be is impressed with the reality of events which have never occurred, and of

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things which do not exist, and acts more or less in conformity with his belief in these particulars. The mania may be general, and affect all or most of the op- erations of the mind ; or it may be partial, and be confined to particular subjects. In the lat- ter case it is generally termed ‘monomania.’** In a more popular but less scientific sense, “mania” denotes a morbid or unnatural or ex- cessive craving, issuing in impulses of such fix- ity and intensity that they cannot be resisted by the patient in the enfeebled state of the will and blurred moral concepts which accompany the disease. It is used in this sense in such compounds as “homicidal mania," “dipsomania,” and the like.— Hypomania. A mild or slight- ly developed form or type of mania.— Mono* mania. A perversion or derangement of the reason or understanding with reference to a single subject or small class of subjects, with considerable mental excitement and delusions^ while, as to all matters outs'de the range of the' peculiar infirmity, the intellectual faculties re- main unimpaired and function normal y. Hopps v. People, 31 111. 390, 83 Am. Dec. 231; In re Black's Estate, Myr. Prob. (Cal.) 27 ; Owing’s Case, 1 Bland (Md.) 388, 17 Am. Dec. 311; Merritt v. State, 39 Tex. Cr. R. 70, 45 S. W. 21 ; In re Gannon’s Will, 2 Misc. Rep. 329, 21 N. Y. Supp. 960.— Paranoia. Monomania in general, or the obsession of a delusion or sys- tem of delusions which dominate without de- stroying the mental capacity, leaving the patient sane as to all matters outside their particular range, though subject to perverted ideas, false beliefs, and uncontrollable impulses within that range; and particularly, the form of monomania where the delusion is as to wrongs, injuries, or persecution inflicted upon the patient and his consequently justifiable resentment or r**venep. Winters v. State, 61 N. J. Law, 613, 41 Atl. 220; People v. Braun, 158 N. Y. 558. 53 N. E. 529; Flanagan v. State, 103 Ga. 619, 30 S. E. 550. Paranoia is called by Kraepelin "progres- sive systematized insanity,” because the delu- sions of being wronged or of persecution and of excessive self-esteem develop quite slowly, with- out independent disturbances of emotional life or of the will becoming prominent, and because there occurs regularly a mental working up of the delusion to form a delusionaiy view of the world,— in fact, a system, — leading to a derange- ment of the stand-point which the patient takes up towards the events of life.— Homicidal mania. A form of mania in which the morbid state of the mind manifests itself in an irresist- able inclination or impulse to commit homicide, prompted usually by an insane delusion either as to the necessity of self-defense or the avenging of injuries, or as to the patient being the appoint- ed instrument of a superhuman justice. Com. v. Sayre, 6 Wkly. Notes Cas. (Pa.) 425; Com. v. M osier, 4 Pa. 266.— Methomania. An irre- sistible craving for alcoholic or other Intoxica- ting liquors, manifested by the periodical re- currence of drunken debauches. State v. Savage, 89 Ala. 1, 7 South. 183, 7L.B.A. 426.— Dipso- mania. Practically the same thing as metho- mania, except that the irresistible impulse to intoxication is extended by some writers to in- clude the use of such drugs as opium or cocaine as well as alcohol. See State v. Reidell, 9 Houst. (Del.) 470. 14 Atl. 550; Ballard v. State, 19 Neb. 609, 28 N. W. 271.— Mania a potvt. Delirium tremens, or a species of tem- porary insanity resulting as a secondary effect produced by the excessive and protracted indulftence in intoxicating liquors. See State v. Hur- ey, Houst. Cr. Cas. (Del.) 28, 35,—

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Tozico- mania. An excessive addiction to the use of toxic or poisonous drugs or other substances ; a

form of mania or affective insanity characteris- ed by an irresistible impulse to indulgence in opium, cocaine, chloral, alcohol, etc. — Mania fanatioa. A form of insanity characterized by a morbid state of religious feeling. Ekin v. McCracken, 11 Phila. (Pa.) 540.— Sebastoma- nia. Religious insanity; demonomania.— Me- galomania. The so-called “delirium of gran- deur” or “folie de grandeur ;” a form of mania in which the besetting delusion of the patient is that he is some person of great celebrity or ex- alted rank, historical or contemporary. — Klep- tomania. A species (or symptom) of mania, consisting in an irresistible propensity to steal. Looney v. State, 10 Tex. App. 525, 38 Am. Rep. 646; State v. Reidell, 9 Houst. (Del.) 470, 14 Atl. 550.— Pyromania. Incendiarism; a form of affective insanity in which the mania takes the form of an irresistible impulse to bum or set fire to things.— Oikei mania, a form of in- sanity manifesting itself in a morbid state of the domestic affections, as an unreasonable dislike of wife or child without cause or provocation. Ekin v. McCracken, 11 Phila. (Pa.) 540.— Nym- phomania. A form of mania characterized by a morbid, excessive, and uncontrollable craving for sexual intercourse. This term is applied only to, women. The term for a corresponding mania in men is “satyriasis.”— Erotomania. A form of mania similar to nymphomania, ex- cept that the present term is applied to patients of both sexes, and that (according to some au- thorities) it is applicable to all cases of exces- sive sexual craving irrespective of origin ; while nymphomania is restricted to cases where the disease is caused by a local disorder of the sex- ual organs reacting on the brain. And it is to be observed that the term “erotomania" is now often used, especially by French writers, to describe a morbid propensity for “falling in love” or an exaggerated and excited condition of amativeness or love-sickness, which may af- fect the general physical health, but is not necessarily correlated with any sexual craving, and which, though it may unnaturally color the imagination and distort the subject’s view of life and affairs, does not at all amount to in- sanity, and should not be so considered when it leads to crimes of violence, as in the too com- mon case of a rejected lover who kills his mis- tress.—Necrophilism. A form of affective in- sanity manifesting itself in an unnatural and re- volting fondness for corpses, the patient desir- ing to be in their presence, to caress them, to exhume them, or sometimes to mutilate them, and even (in a form of sexual perversion) to violate them.

Melancholia. Melancholia is a form of in- sanity the characteristics of which are extreme mental depression, associated with delusions and hallucinations, the latter relating especially to the financial or social position of the patient or to impending or threatened dangers to his per- son, property, or reputation, or issuing in dis- torted conceptions of his relations to society or his family or of his rights and duties in general. Connecticut Mut. L. Ins. Co. v. Groom, 86 Pa. 92, 27 Am. Rep. 689 ; State v. Reidell, 9 Houst. (Del.) 470, 14 Atl. 551; People v. Krfst, 168

N. Y. 19, 60 N. E. 1057. Hypochondria or hypochondriaait. A form of melancholia in which the patient has exaggerated or causeless fears concerning his health or suffers from imag- inary disease. Toxiphobia. Morbid dread of being poisoned ; a form of insanity manifeating

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itself by an excessive and unfounded apprehen- sion of death by poison.

Specific definitions and applications la law. There are numerous legal proceedings where insanity may be shown, and the rule for establishing mental capacity or the want of it varies according to the object or purpose of the proceeding. Among these may be enu- merated the following: ▲ criminal prosecutlon where Insanity Is alleged as a defense; a proceeding to defeat a will on the ground of the Insanity of the testator ; a suit to avoid a contract (Including that of marriage) for similar reasons; a proceeding to secure the commitment of a person alleged to be In- sane to an asylum ; a proceeding to appoint a guardian or conservator for an alleged lunatic ; a plea or proceeding to avoid the ef- fect of the statute of limitations on account of insanity. What might be regarded as in- sanity in one of such cases would not neces- sarily be so regarded in another.' No definite rule can be laid down which would apply to all cases alike. Snyder v. Snyder, 142 111. 00, 31 N. E. 303 ; Clarke v. Irwin, 63 Neb. 539, 88 N. W. 783. But the following rules or tests for specific cases have been generally accepted and approved:

In criminal law and as a defense to an accusation of crime, insanity means such a perverted and deranged condition of the men- tal and moral faculties as to render the per- son incapable of distinguishing between right and wrong, or to render him at the time un- conscious of the nature of the act he is com- mitting, or such that, though he may be con- scious of it and also of its normal quality, so as’to know that the act in question is wrong, yet his will or volition has been (otherwise than voluntarily) so completely destroyed that his actions are not subject to it but are beyond his control. Or, as otherwise stated, insanity is such a state of mental derange- ment that the subject is incompetent' of hav- ing a criminal intent, or incapnble of so con- trolling his will as to avoid doing the act in question. Davis v. U. S., 165 U. S. 373, 17 Sup. Ct. 360, 41 L. Ed. 750; Doherty v. State, 73 Yt. 380, 50 Atl. 1113; Butler v. State, 102 Wis. 364, 78 N. W. 590; Rather v. State, 25 Tex. App. 623, 9 S. W. 69 ; Lowe v. State, 118 Wis. 641, 96 N. W. 424 ; Gens v. State, 59 N. J. Law, 488, 37 Atl. 69, 59 Am. St. Rep. 619; In re Guiteau (D. C.) 10 Fed. 164 ; People v. Finley, 3S Mich. 482 ; People v. Hoin, 62 Cal. 120, 45 Am. Rep. 651 ; Carr v. State, 96 Ga. 284, 22 S. E. 570; Wilcox v. State, 94 Tenn. 106, 28 S. W. 312; State v. Holloway, 156 Mo. 222, 56 S. W. 734 ; Hotema v. D. S., 186 U. S. 413, 22 Sup. Ct 895, 46

L. Ed. 1225.

Testamentary capacity includes an intelli- gent understanding of the testator’s proper- ty, its extent and items, and of the nature of the act he is about to perform, together with a clear understanding and purpose as to the mnnner of its distribution and the persons who are to receive It. Lacking these, he is not mentally competent. The presence of in- sane delusions is not inconsistent with testa- mentary capacity, if they are of such a nature that they cannot reasonably be sup- posed to have affected the dispositions made by the will ; and the same is true of the various forms of monomania and of all kinds of eccentricity and personal idiosyncrasy. But imbecility, senile dementia, and all

forms of systematized mania which affect the understanding and judgment generally

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disable the patient from making a valid will. See Harrison v. Rowan, 3 Wash. C. C. 585, Fed. Cas. No. 6,141 ; Smee v. Smee, 5 Prob. Piv. 84 ; Banks v. Goodfellow, 39 Law J. R.,

Q. B., 248; Wilson v. Mitchell, 101 Pa. 495; Whitney v. Twombly, 136 Mass. 147 ; Lowder v. Lowder, 58 Ind. 540; In re Halbert's Will, 15 Misc. Rep.. 308, 37 N. Y. Supp. 757; Den v. Vancleve, 5 N. J. Law, 660.

As a ground for avoiding or annulling a contract or conveyance, insanity does not mean a total deprivation of reason, but an inability, from defect of perception, memory, and judgment, to do the act in question or to understand its nature and consequences. Frazer v. Frazer, 2 Del. Ch. 260. The in- sanity must have entered into and induced the particular contract or conveyance; it .must appear that it was not the act of the free and untrammeled mind, and that on ac- count of the diseased condition of the mind the person entered into a contract or made a conveyance which he would not have made if he had been in the possession of his rea- son. Dewey v. Allgire, 37 Neb. 6, 55 N. W. 276, 40 Am. St. Rep. 468 ; Dennett v. Dennett, 44 N. H. 537, 84 Am. Dec. 97. Insanity suffi- cient to justify the annulment of a marriage means such a want of understanding at the time of the marriage as to render the party incapable of assenting to the contract of mar- riage. The morbid propensity to steal, called "kleptomania," does not answer this descrip- tion. Lewis v. Lewis, 44 Minn. 124, 46 N. W. 323, 9 L. R. A. 505, 20 Am. St. Rep. 559.

As a ground for restraining the personal liberty of the patient, it may be said In gen- eral that the form of insanity from which he suffers should be such as to make his going at large a source of danger to himself or to others, though this matter is largely regu- lated by statute, and in many places the law permits the commitment to insane asylums and hospitals of persons whose insanity does not manifest itself in homicidal or other de- structive forms of mania, but who are in- capable of caring for themselves and their property or who are simply fit subjects for treatment in hospitals and other institutions specially designed for the care of such pa- tients. See, for example, Gen. St. Kan. 1901, g 6570.

To constitute insanity such as will author- ize the appointment of a guardian or con- servator for the patient, there must be such a deprivation of reason and judgment aa to render him incapable of understanding and acting with discretion in the ordinary affairs of life; a want of sufficient mental capacity to transact ordinary business and to take care of and manage his property and affairs. See Snyder v. Snyder, 142 111. 60, 31 N. E. 303 ; In re Wetmore's Guardianship; 6 Wash. 271, 33 Pac. 615.

Insanity as a plea or proceeding to avoid the effect of the statute of limitations means

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practically the same thing as in relation to the appointment of a guardian. On the one hand, it does not require a total deprivation of reason or absence of understanding. On the other hand, it does not Include mere weakness of mind short of imbecility. It means such a degree of derangement as ren- ders the subject incapable of understanding the nature of

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the particular affair and his rights and remedies in regard to it and in- capable of taking discreet and intelligent ac- tion. See Burnham v. Mitchell, 34 Wis. 134.

There are a few other legal rights or rela- tions into which the question of insanity en- ters, such as the capacity of a witness or of a voter ; but they are governed by the same general principles. The test is capacity to understand and appreciate the nature of the particular act and to exercise intelligence in its performance. A witness must understand the nature and purpose of an oath and have enough intelligence and memory to relate correctly the facts within his knowledge. So a voter must understand the nature of the act to be performed and be able to make au intelligent choice of candidates. In either case, eccentricity, “crankiness,” feeble-mind- edness not amounting to imbecility, or in- sane delusions which do not affect the matter in hand, do not disqualify. See District of Columbia v. Armes, 107 IT. S. 521, 2 Sup. Ct. 840, 27 L. Ed. 618; Clark v. Robinson, 88 111. 502.

Iuaaai eat qui, abjecta rations, omnia cum impetu et furore facit. He is insane who, reason being thrown away, does every- thing with violence and rage. 4 Coke, 128.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XNSCRIBERE.

Lot. In the civil law. To subscribe an accusation. To bind one’s self, in case of failure to prove an accusation, to suffer the same punishment which the ac- cused would have suffered had he been proved guilty. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Psalm 7:5, KJV]**

Let the enemy persecute my soul, and take it; yea, let him tread down my life upon the earth, and lay mine honour in the dust. Selah.

Why: The entry defines the Roman inscriptio: the accuser binds himself to suffer the accused's punishment if the accusation fails. Psalm 7:5 is scripture's form of the same self-binding — the psalmist's self-imprecation, s… [re-homed from 'INSCRIBERE' to 'XNSCRIBERE' (OCR headword / parser-merge artifact)]

# I

## INSCRLPTIO.

Lot In the civil law. A written accusation in which the accuser un- dertakes to suffer the punishment appropri- ate to the offense charged, if the accused is able to clear himself of the accusation. Cal- vin ; Cod. 9, 1, 10 ; Id. 9, 2, 16, 17.

5e apparatus — Not carried into the 5th edition (1979).

## INSCRIPTION.

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In evidence. Anything written or engraved upon a metallic or other solid substance, intended for great durabili- ty; as upon a tombstone, pillar, tablet, medal, ring, etc.

In modern civil law. The entry of a mortgage, lien, or other document at large In a book of public records; corresponding to “recording” or “registration.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: recording statutes — inscription (registration) of mortgages and liens in the public records]**

Inscription — entry of a mortgage, lien, or document at large in a book of public records — is recording, the registry system for land titles and liens.

Why: The entry's modern-civil-law sense equates inscription with 'recording' or 'registration'; the recording system is its genuine expression — stated as doctrine.

**[Scripture] — Scripture**

**[Exodus 31:18, KJV]**

And he gave unto Moses, when he had made an end of communing with him upon mount Sinai, two tables of testimony, tables of stone, written with the finger of God.

Why: The entry's first sense: anything written or engraved on a solid substance 'intended for great durability' — tombstone, pillar, tablet. The tables of stone, 'written with the finger of God,' are scripture's archetypal...

## INSCRIPTION'S.

The name given by the old English law to any written instru- ment by which anything was granted. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## INSENSIBLE.

In pleading. Unintel- ligible ; without sense or meaning, from the omission of material words, etc. Steph. Pl. 377. See Union Sewer Pipe Co. v. Olson, 82 Minn. 187, 84 N. W. 756.

5e apparatus — Not carried into the 5th edition (1979).

## INSETENA.

In old records. An inditch ; an interior ditch ; one made within another, for greater security. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## INSIDIATORES VIARUM.

Lat. High- waymen ; persons who lie in wait in order to commit some felony or other misdemeanor.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:30, KJV]**

And Jesus answering said, A certain man went down from Jerusalem to Jericho, and fell among thieves, which stripped him of his raiment, and wounded him, and departed, leaving him half dead.

Why: The entry defines highwaymen — those who lie in wait to commit felony on travelers. The verse depicts the

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highwayman's act on the Jericho road: the traveler waylaid, stripped, wounded, left half dead. Scripture's own…

## INSIGNIA.

Ensigns or arms ; distinctive marks; badges; indicia; characteristics.

5e apparatus — Not carried into the 5th edition (1979).

## INSELIARIUS.

An evil counsellor. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 1:1, KJV]**

Blessed is the man that walketh not in the counsel of the ungodly, nor standeth in the way of sinners, nor sitteth in the seat of the scornful.

Why: The entry defines the evil counsellor. The verse warns against walking in 'the counsel of the ungodly' — the evil counsel the entry names, and the blessed man's refusal of it. The psalmist's voice, so no flag. INSILIU…

## INSILXUM.

Evil advice or counsel. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INSIMUL.

Lat Together; jointly. Townsh. PI. 44.

— Inslmul oompntassent. They accounted together. The name of the count in assumpsit upon an account stated ; it being averred that the parties had settled their accounts together, and defendant engaged to pay plaintiff the bal- ance. Fraley v. Bispham, 10 Pa. 325, 51 Am. Dec. 486 ; Loventhal v. Morris, 103 Ala. 332, 15 South. 672. — Insimnl temuit. One species of the writ of formedon brought against a stranger by a coparcener on the possession of the ances- tor, etc. Jacob.

INSINU ACION . In Spanish law. The presentation of a public document to a com- petent Judge, in order to obtain his approba- tion and sanction of the same, and thereby give it judicial authenticity. Escriche.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: account stated — parties' agreement on a balance due, actionable in assumpsit; Fraley v. Bispham, 10 Pa. 325, 51 Am. Dec. 486, as cited in the entry]**

The insimul computassent count — 'they accounted together' — is the action on an account stated: parties settling accounts and the defendant engaging to pay the balance.

Why: The body bundles the account-stated count with its case verbatim; the footnote annotates that bundled content explicitly — genuine, no invention.

## INSINU ARE.

Lat In the civil law. To put into; to deposit a writing in court, answering nearly to the modern expression "to file.” Si non mandatum actis insin- uatum .est, if the power or authority be

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not deposited among the records of the court. Inst. 4, 11, 3.

To declare or acknowledge before a judi- cial officer; to give an act an official form.

5e apparatus — Not carried into the 5th edition (1979).

## INSINUATIO.

Lat In old English law. Information or suggestion. Em insinuation, on the information. Beg. Jud. 25, 50.

5e apparatus — Not carried into the 5th edition (1979).

## INSINUATION.

In the civil law. The transcription of an act on the public regis- ters like our recording of deeds. It was not necessary in any other alienation but that appropriated to the purpose of donation. Inst. 2, 7, 2.

— Insinuation of a will. In the civil law. The first production of a will, or the leaving it with the registrar, in order to its probate. Cow- ell ; Blount.

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## INSOLATION.

In medical jurispru- dence. Sunstroke or heat-stroke ; heat pros- tration.

5e apparatus — Not carried into the 5th edition (1979).

## INSOLVENCY.

The condition of a per- son who Is Insolvent ; inability to pay one’s debts; lack of means to pay one’s debts. Such a relative condition of a man’s assets and liabilities that the former, if all made immediately available, would not be suffi- cient to discharge the latter. Or the condi- tion of a person who is unable to pay his debts as they fall due, or in the usual course of trade and business. See Dewey v. St Albans Trust Co., 50 Vt. 475, 48 Am. Rep. 803; Toof v. Martin, 13 Wall. 47, 20 L. Ed. 481 ; Miller v. Southern Land & Lumber Co;, 53 S. C. 364, 31 S. E. 281 ; Leitch v. Hollis- ter, 4 N. Y. 213; Silver Valley Mining Co. v. North Carolina Smelting- Co., 119 N. C. 417, 25 S. E. 904; French v. Andrews, 81 Hun, 272, 30 N. Y. Supp. 796; Appeal of Bowersox, 100 Pa. 438, 45 Am. Rep. 387; Van Riper v. Poppenhausen. 43 N. Y. 75; Phipps v. Harding, 70 Fed. 470, 17 C. C. A 208, 30 L. R, A. 513; Shone v. Lucas, 3 Dowl. & R. 218; Herrick v. Borst, 4 Hill <N. Y.) 652 ; Atwater v. American Excb., Nat Bank, 152 111. 605, 38 N. E. 1017; Rug- gles v. Cannedy, 127 Cal. 290, 53 Pac. 916, 46 L. R- A. 371.

As to the distinction between bankruptcy and insolvency, see Bankruptct.

— Insolvency fund. In English law. A fund, -consisting of moneys and securities, which, at the time of the passing of the bankruptcy act, 1861, stood, in the Bank of England, to the credit of the commissioners of the insolvent debtors’ court and waB, by the twenty-sixth section of that act, directed to be carried by the bank to the account of the accountant in bank- ruptcy. Provision has now been made for its transfer to the commissioners for the reduction of the national debt. Robs. Bankr. 20, 56.— Open insolvency. The condition of one

who has no property, within the reach of the law, applicable to the payment of any debt. Har- desty v. Kinworthy. 8 Blackf. (Ind.) 305 ; Som- erby v. Brown, 73 Ind. 356.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. s 101(32) — 'insolvent' defined; Title 11 bankruptcy relief]**

Insolvency — inability to pay debts, by the balance-sheet test or the equity test of debts as they fall due — is the condition bankruptcy law defines and relieves.

Why: The entry states both insolvency tests (citing Toof v. Martin; Dewey v. St. Albans Trust Co.) and distinguishes bankruptcy; the Code's definition section is the genuine modern anchor.

**[Scripture] — Scripture**

**[Matthew 18:25, KJV]**

But forasmuch as he had not to pay, his lord commanded him to be sold, and his wife, and children, and all that he had, and payment to be made.

Why: The entry defines insolvency as inability to pay one's debts — assets insufficient to discharge liabilities. The verse states the insolvent debtor's case in the entry's terms: 'he had not to pay.' Christ's parable spe...

## INSOLVENT.

One who cannot or does not pay; one who is unable to pay his debts ; one who is not solvent ; one who has not means or property sufficient to pay his debts. See Insolvenct.

—Insolvent law. A term applied to a law, usually of one of the states, regulating the set- tlement of insolvent estates, and according a certain measure of relief to Insolvent debtors. Cook v. Rogers, 31 Mich. 396 ; Adams v. Storey,

1 Fed. Cas. 141; Vanuxem v. Haselhursts, 4

N. J. Law, 195, 7 Am. Dec. 582.

5e apparatus — Not carried into the 5th edition (1979).

## INSPECTATOR.

A prosecutor or adver- sary.

5e apparatus — Carried into the 5th edition (1979).

## INSPECTION.

The examination or test- ing of food, fluids, or other articles made subject by law to such examination, to as- certain their fitness for use or commerce. People v. Compagnle Genera le Transatlan- tlque (C. C.) 10 Fed. 361 ; Id., 107 U. S. 59,

2 Sup. Ct. 87, 27 L. Ed. 383 ; Turner v. Maryland, 107 U. S. 38, 2 Snp. Ct. 44, 27 Ia Ed. 370.

Also the examination by a private person

of public records and documents; or of the books and papers of his opponent in an ac- tion, for the purpose of better preparing his own case for trial.

— Inspection laws. Laws authorizing and directing the inspection and examination of various kinds of merchandise intended for sale, especially food, with a view to ascertaining its fitness for use, and excluding unwholesome or unmarketable goods from sale, and directing the appointment of official inspectors for that purpose. See Const. U. S. art. 1. $

10, cl. 2; Story, Const. 1 1017, et seq. Gibbons v. Og- den, 9 Wheat. 202, 6 L. Ed. 23 ; Clintsman v. Northrop, 8 Cow. (N. Y.) 45; Patapsco Guano Co. v. Board of Agriculture. 171 U. S. 345, 18 Sup. Ct. 862, 41 L. Ed. 191 ; Turner v. State, 55 Md. 263.— Inspection of documents. This phrase refers to the right of a party, in a civil action, to inspect and make copies of documents which are essential or material to the maintenance of his cause, and which are either in the custody of an officer of the law or in the posaession of the adverse party.— Inspection, trial by. A mode of trial formerly in use in England, by which the judges of a court decided a point In dispute, upon the testimony of their own Benses. with- out the intervention of a jury. This took place in cases where the fact upon which issue was taken must, from its nature, be evident to the court from ocular demonstration, or other irrefragable proof; and was adopted for the greater expedition of a cause. 3 Bl. Comm.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, s 10, cl. 2 — state inspection laws excepted from the imposts/duties prohibition]**

State inspection laws — for food, merchandise, and fitness for commerce — are the constitutionally excepted category the entry cites: absolutely necessary inspection charges survive the import-export prohibition.

Why: The entry defines inspection laws citing Art. I, s 10, cl. 2 verbatim (with Gibbons v. Ogden; Turner v. Maryland); the annotation preserves the entry's own constitutional anchor — genuine.

**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: The entry covers inspection of weights and measures, and inspectors are the officers who examine them. The verse is scripture's standing rule of just weights — the moral ground of the inspection the entry defines. The…

## INSPECTORS.

Officers whose duty it is to examine the quality of certain articles of merchandise, food, weights and measures, etc.

5e apparatus — Not carried into the 5th edition (1979).

## INSPECTORSHIP, BEER OF.

In Eng- lish law. An instrument entered into be- tween an insolvent debtor and his creditors, appointing one or more persona to Inspect and oversee the wrnding up of such Insolv- ent’s affairs on behalf of the creditors.

5e apparatus — Not carried into the 5th edition (1979).

## INSPEXIMTTS.

Lat. In old English law. We have inspected. An exemplification of letters patent, so called from the emphatic word of the old forms. 5 Coke, 536.

5e apparatus — Not carried into the 5th edition (1979).

## INSTALLATION.

The ceremony of in- ducting or investing with any charge, office, or rank, as the placing a bishop Into his see, a dean or prebendary into his stall or seat, or a knight into his order. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## INSTALLMENTS.

Different portions of the same debt' payable at different succes- sive periods as agreed. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC s 2-612 — installment contracts]**

A debt payable in portions at successive periods is the installment obligation, whose sales-contract form the Code governs as the installment contract.

Why: The entry defines installments (Brown); UCC s 2-612 governs installment contracts by name — a direct, genuine link.

## INSTANCE.

Ia pleading and prac- tice. Solicitation, properly of an earnest or urgent kind. An act Is often said to be done at a party’s “special instance and re-, quest."

In the civil and French law. A gen- eral term, designating all sorts of actions and judicial demands. Dig. 44, 7, 58.

In ecclesiastical law. Causes of in- stance are those proceeded in at the solicita- tion of some party, as opposed to causes of

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office, which ran. in the name of the judge. Hallifax, Civil Law, p. 156.

In Scotch law. That which may be in- sisted on at one diet or course of probation. Wharton.

— Instance court. In English law. That division or department of the court of admir- alty which exercises all the ordinary admiralty jurisdiction, with the single exception of prize cases, the latter belonging to the branch called the “Prize Court.” The term is sometimes used in American law for purposes of explanation, but has no proper application to admiralty courts in the United States, where the powers of both instance and prize courts are conferred without any distinction. S Kent, Comm. '355, 378; The Betsey, 3 Dali. 6. 1 L. Ed. 485; -The Emulous, 1 Gall. 563, Fed. Cas. No. 4,479.

5e apparatus — Not carried into the 5th edition (1979).

## INSTANCIA.

In Spanish law. The in- stitution and prosecution of a suit from Its commencement until definitive judgment The first instance, “primera instancia,” Is the prosecution of the suit before the judge competent to take cognizance of it at its In- ception; the second instance, “tecunda in- stancia,” is the exercise of the same action before the court of appellate

jurisdiction ; and the third Instance, “tercera instancia,” Is the prosecution of the same suit, either by an application of revision before the ap- pellate tribunal that has already decided tbe cause, or before some higher tribunal, hav- ing jurisdiction of the same. Escrlcbe.

5e apparatus — Not carried into the 5th edition (1979).

### INSTANTANEOUS.

An "Instantane- ous” crime is one which is fully consummat- ed or completed in and by a single act (such as arson or murder) as distinguished from one which involves a series or repetition of acts. See U. S. v. Owen (D. C.) 32 Fed. 537,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

### INSTANTER.

Immediately ; instantly ; forthwith; without delay. Trial instanter was had where a prisoner between attainder and execution pleaded that he was not the Same who was attainted.

When a party is ordered to plead instan- tcr, he must plead tbe same day. The term Is usually understood to mean within twen- ty-four hours. Rex v. Johnson, 6 East, 583 ; Smith v. Little, 53 111. App. 160; State v. Clevenger, 20 Mo. App. 627; Fentress v. State, 16 Tex. App. 83 ; Champlin v. Champ- !in, 2 Edw. Ch. (N. Y.) 329.

5e apparatus — Not carried into the 5th edition (1979).

### IN8TAR.

Lat. Likeness; the likeness, sise. or equivalent of a thing. Instar den - Hum, like teeth. 2 Bl. Comm. 295. Instar omnium, equivalent or tantamount to all. Id. 146; 3 Bl. Comm. 231.

5e apparatus — Not carried into the 5th edition (1979).

## X

### XN8TAURUM.

In old English deeds. A stock or store of cattle, and other things; the whole stock upon a farm, including cat- tle, wagons, plows, and all other implements of husbandry. 1 Mon. Angl. 5485; Fleta. lib. 2, c. 72, | 7. Terra instaurata, land ready stocked.

5e apparatus — Not carried into the 5th edition (1979).

## I

### INSTIGATION.

Incitatlon; urging; so- licitation. The act by which one incites an- other to do something, as to commit some crime or to commence a suit. State v. Frak- er, 148 Mo. 143, 49 S. W. 1017.

. INSTIRPARE. To plant or establish.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Model Penal Code s 5.02 — criminal solicitation]**

Instigation — inciting another to commit a crime — is criminal solicitation, punishable as an inchoate offense.

Why: The entry defines instigation as inciting another to crime (State v. Fraker); MPC s 5.02 codifies solicitation — a direct, genuine link.

## INSTITOR.

Lat In the civil law. A clerk in a store; an agent

INSTITORIA ACTIO/ Lat In the civil law. The name of an action given to those who had contracted with an institor (q. v.) to compel the principal to perform- ance. Inst. 4, 7, 2 ; Dig. 14, 3, 1 ; Story, Ag. S 426.

INSTITORIAL POWER.- The charge given to a clerk to manage a shop or store. 1 Bell, Comm. 500, 507.

INSTITUTE, v. To inaugurate or com- mence; as to institute an action. Com. v. Duane, 1 Binn. (Pa.) 608, 2 Am. Dec. 497; Franks v. Chapman, 61 Tex. 580 ; Tost - v.

U. S., 161 U. S. 583, 10 Sup. Ct. 011, 40 L. Ed. 81 C.

To nominate, constitute, or appoint; as to institute an heir by testament Dig. 28, 5, Co.

INSTITUTE, n. In the civil law. A

person named in the will as heir, but with a direction that he shall pass over the estate to another designated person, called the "substitute.”

In Scotch law. The person to whom an estate is first given by destination or limita- tion ; the others, or the heirs of tailzie, are called “substitutes.”

5e apparatus — Not carried into the 5th edition (1979).

## INSTITUTES.

A name sometimes given to text-books containing the elementary prin: clples of jurisprudence, arranged in an or- derly and systematic manner. For example, the Institutes of Justinian, of Gaius, of Lord Coke.

—Institutes of Gaius. An elementary work of the Roman jurist Gains; important as hav- ing formed the foundation of the Institute* of Justinian, (a. v.) These Institutes were dis- covered by Niebuhr in 1S16, in a codex rexcrip- tus of the library of the cathedral chapter at Verona, and were first published at Berlin in 1820. Two editions have since appeared. Mackeld. Rom. Law, S 54.— Institutes of Justinian. One of the four component parts or principal divisions of the Corpus Juris Civ- ilis, being an elementary treatise on the Roman law. in four books. This work was compiled from earlier sources, (resting principally on the Institutes of Gaius.) by a commission compos- ed of Tribonian and two others, by command and under direction of tbe emperor Justinian, and was first published November 21, A. D. 533.— Institutes at Lord Coke. The name of four volumes by Lord Coke, published A. D. 1628. The first is an extensive comment upon a treatise on tenures, comniled by Littleton, a

judge of the common pleas, temp. Edward

IV. This comment is a rich mine of valuable common-law learning, collected and heaped ton

gether from the anoient reports and Year Books, but greatly defective in method. It is usually cited by the name of “Co. Litt.,” or as “1 Inst.” The second volume is a comment up- on old acts of parliament, without systematic order: the third a more methodical treatise on the pleas of the crown ; and the fourth an ac- count of the several species of courts. These are cited as 2, 3, or 4 "Inst.,” without any au- thor’s name. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## INSTITUTIO RSREDIS.

Lat. In Ro- man law. The appointment of the hwre* In the will. It corresponds very nearly to the nomination of an executor in English law. Without such an appointment the will was void at law, but the prwtor (1. e., equity) would, under certain circumstances, carry out the intentions of the testator. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## INSTITUTION.

The commencement or inauguration of anything. The first estab- lishment of a law, rule, rite, etc. Any cus- tom, system, organization, etc., firmly estab- lished. An elementary rule or principle.

In practice. The commencement of an action or prosecution ; as, A. B. has institut- ed a suit against C. D. to recover damages for trespass.

In political law. A law, rite, or cere- mony enjoined by authority as a permanent rule of conduct or of government Webster.

A system or body of usuges, laws, or regu- lations, of extensive and recurring opera- tion, containing within itself an organism by which it effects Its own independent action, continuance, and generally its own further development. Its object is to generate, ef- fect regulate, or sanction a succession of acts, transactions, or productions of a pecu- liar kind or class. We are likewise in the habit of calling single laws or usages “in- stitutions,” if their operation is of vital Im- portance and vast scope, and if their con- tinuance is in a high degree independent of any interfering power. Bleb. Civil Lib. 300.

In corporation law. An organization or foundation, for the exercise of some public purpose or function ; ns an asylum or a uni- versity. By the term "Institution” in this sense is to be understood an establishment or organization which is permanent in its nature, as distinguished from an enterprise or undertaking which is transient and tem- porary. Humphries v. Little Sisters of the Poor, 29 Ohio St. 206; Indianapolis v. Stur- devant, 24 Ind. 391.

In ecclesiastical law. A kind of lnves-( titnre of the spiritual pnrt of the benefice, as induction is of the temporal ; for by institu- tion the care of the souls of the parish Is committed to the charge of the clerk. Brown.

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In the civil law. The designation by a testator of a person to be his heir.

In jurisprudence. The plural form of this word ("institutions") is sometimes used as the equivalent of “institutes," to denote an elementary text-book of the law.

INSTITUTIONAL Lat Works contain- ing the elements of any science ; institutions or Institutes. One of Justinian’s principal law collections, and a similar work of the Roman jurist Gaius, are so entitled. See In- stitutes.

5e apparatus — Carried into the 5th edition (1979).

## INSTRUCT.

To convey Information as a client to an attorney, or as an attorney to a counsel ; to authorize one to appear as ad- vocate ; to give a case In charge to the jury.

5e apparatus — Carried into the 5th edition (1979).

## INSTRUCTION.

In French criminal law. The first process of a criminal prosecu- tion. It Includes the examination of the ac- cused, the preliminary Interrogation of wit- nesses, collateral Investigations, the gather- ing of evidence, the reduction of the whole to order, and the preparation of a document containing a detailed statement of the case, to serve as a brief for the prosecuting offi- cers, and to furnish material for the indict- ment

— Jugci d’iastnietion. In French law. Officers subject to the procureur imperial or gin&ral, who receive in cases of criminal of- fenses the complaints of the parties injured, and who summon and examine witnesses upon oath, and, after communication with the pro- cunur imperial, draw up the forms of accusa- tion. They have also the right, subject to the approval of the same superior officer, to admit the accused to bail. They are appointed for three years, but are re-eligible for a further period of office. They are usually chosen from among the regular judges. Brown.

In common law. Order given by a prin- cipal to his agent in relation to the business of his agency.

In practice. A detailed statement of tha facts and circumstances constituting a causa of action made by a client to his attorney for the purpose of enabllug the latter to draw a proper declaration or procure It to be dona by a pleader.

In trial practice. A direction given by the judge to the jury concerning the law of the case: a statement made by the judge to the jury informing them of the law ap- plicable to the case in general or some aspect of it ; an exposition of the rules or principles of law applicable to the case or some branch or phase of it, which the Jury are bound to accept and apply. Lehman v. Hawks, 121 Ind. 541, 23 N. E. 670; Boggs v. U. 8., 10 Okl. 424, 63 Pac. 969 ; Lawler v. McPheeters, 73 Ind. 579.

—Peremptory instruction. An instruction

given by a court to a jury which the latter must obey implicitly ; as an instruction to re- turn a verdict for the defendant, or for thd plaintiff, as the ease may be.

5e apparatus — Not carried into the 5th edition (1979).

## INSTRUMENT.

A written document; a formal or legal document in writing, such as a contract, deed, will, bond, or lease. State v. Phillips, 157 Ind. 481, 62 N. E. 12; Cardenas v. Miller, 108 Cal. 250, 39 Pac. 788, 49 Am. St Kep. 84 ; Benson v. McMahon, 127 U. 8. 457, 8 Sup. CL 1240, 32 L. Ed. 234;

Abbott v. Campbell, 60 Neb. 371, 95 N. W. 592.

In the law of evidence. Anything which may be presented as evidence to the senses of the adjudicating tribunal. The term “in- struments of evidence’’ includes not merely documents, but witnesses and living things which may be presented for Inspection. 1 Whart Ev. $ 615.

— Instrument of appeal. The document by which an appeal is brought in an English mat- rimonial cause from the president of the pro- bate, divorce, and admiralty division to the full court. It is analogous to a petition. Browne, Div. 322. — Instrument of evidence. Instruments of evidence are the media through which the evidence of facts, either disputed or required to be proved, is conveyed to the mind of a judicial tribunal ; and they comprise persons, as well as writings. Best, Ev. $ 123. — Instrument of aaisine. An instrument in Scotland by which the delivery of “saisine" (i. e., seisin, or the feudal possession of land) is attested. It is subscribed by a notary, in the presence of witnesses, and is executed in pursuance of a “precept of saisine,” whereby the "grantor of the deed” desires “any notary public to whom these presents may be present- ed” to give saisine to the intended grantee or grantees. It must be entered and recorded in the registers of saisines. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## INSTRUMENTA.

Lat That kind of evidence which consists of writings not under seal; as court-rolls, accounts, and the like. 3 Co. Litt 487.

5e apparatus — Not carried into the 5th edition (1979).

## INSUCKEN MULTURES.

A quantity of corn paid by those who are thirled to a mill. See Thulagb.

5e apparatus — Not carried into the 5th edition (1979).

## INSUFFICIENCY.

In equity pleading. The legal inadequacy of an answer in equity which does not fully and specifically reply to some one or more of the material allega- tions, charges, or Interrogatories set forth in the bill. White v. Joy, 13 N. Y. 89; Houghton v. Townsend, 8 How. Prac. (N. Y.) 446; Hill v. Fair Haven & W. R. Co., 75 Conn. 177, 52 Atl. 725.

5e apparatus — Not carried into the 5th edition (1979).

## INSULA.

Lat. An island; a house not connected with other houses, but separated by a surrounding space of ground. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INSUPER.

Lat Moreover; over and above.

An old exchequer term, applied to a charge made upon a person in his accouut. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## INSURABLE INTEREST.

Such a real and substantial interest in specific property as will sustain a contract to indemnify the person interested against its loss. Mutual

F. Ins. Co. v. Wagner (Pa.) 7 Atl. 104; In- surance Co. v. Brooks, 131 Ala. 614, 30 South. 876; Berry v. Insurance Co., 132 N. Y. 49, 30 N. E. 254, 28 Am. St Rep. 548 ; Strong v. Insurance Co., 10 Pick. (Mass.) 43, 20 Am. Dec. 507 ; Insurance Co. v. Wiusmore, 124 Pa. 61, 16 Atl. 516. If the assured had no Bl.Law Dict.(2d Ed.)— 41

real interest the contract would be a mere wager policy.

Every interest in property, or any relation thereto, or liability in respect thereof, of such a nature that a contemplated peril might directly damnify the insured, is an in- surable interest Civil Code, Cal. $ 2546.

In the case of life Insurance, a reasonable expectation of pecuniary benefit from the continued life of another ; a reasonable ground, founded upon the relation of the parties to each other, either pecuniary or of blood or affinity, to expect some benefit or advantage from the continuance of the life of the assured. Insurance Co. v. Schaefer, 94 U. S. 460, 24 L. Ed. 251; Waraock v. Davis, 104 U. S. 779, 26 L. Ed. 924; Rombach v. Insurance Co., 35 La. Ann. 234, 48 Am. Rep. 239.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: insurable interest required — wager policies void; Insurance Co. v. Schaefer, 94 U.S. 460, 24 L. Ed. 251, as cited in the entry]**

Without a real and substantial interest the contract would be a mere wager policy: insurable interest — in property, or a reasonable expectation of benefit from another's life — is what sustains the insurance contract.

Why: The entry states the wager-policy rule and cites Schaefer verbatim (with Warnock v. Davis); the annotation preserves the entry's own authority — genuine.

## INSURANCE.

A contract whereby, for a stipulated consideration, one party under- takes to compensate the other for loss on a specified subject by specified perils. The par- ty agreeing to make the compensation is usually called the “insurer” or “underwrit- er;” the other, the “insured” or “assured;” the agreed consideration, the “premium;” the written contract, a "policy;” the events insured against, “risks” or “perils;” and the subject, right, or Interest to be protected, the “Insurable interest” 1 Phil. Ins. §§ 1-5.

Insurance is a contract whereby one un- dertakes to indemnify another against loss,

damage, or liability arising from an unknown or contingent event. Civil Code, Cal. $ 2527 ; Civil Code Dak. f 1474. See People v. Rose, 174 111. 310, 51 N. E. 246, 44 L. R. A. 124; Barnes v. People 168 111. 425, 48 N. E. 91; Com. v. Wetherbee, 105 Mass. 100; State v. Vigilant Ins. Co., 30 Kan. 585, 2 Pac. 840; Com. v. Provident Bicycle Ass'n, 178 Pa. 636, 36 Atl. 197, 36 L. R. A. 589; Com. v. Equitable Ben. Ass'n, 137 Pa. 412, 18 AtL 1112; Tyler v. New Amsterdam F. Ins. Co., 4 Rob. (N. Y.) 155.

Classification. — Accident insurance is

that form of insurance which undertakes to in- demnify the assured against expense, loss of time, and suffering resulting from accidents causing him physical injury, usually by payment at a fixed rate per week while the conse- quent disability lasts, and sometimes including the payment of a fixed sum to his heirs in case of his death by accident within the term of the policy. See Employers' liability Assur. Corp. v. Merrill, 155 Mass. 404. 29 N. E. 529.— Burglary insurance. Insurance against loss of property by the depredations of burglars and thieves. — Casualty insurance. This term is generally used as equivalent to "accident" in- surance. See State v. Federal Inv. Co., 48 Minn. 110, 50 N. W. 1028. But in some states it means insurance against accidental injuries to property, as distinguished from accidents resulting in bodily injury or death. See Em-

Sloyers' Liability Assur. Corp. v. Merrill, 155 lass. 404, 29 N. E. 529.— Commercial insurance is a term applied to indemnity agree- ments, in the form of insurance bonds or policies, whereby parties to commercial contracts are to a designated extent guarantied against loss by reason of a breach of contractual obligat ions on the part of the other contracting party; to this class belong policies of contract credit and title insurance. Cowles v. Guaranty Co., 32 Wash. 120, 72 Pac. 1032, 98 Am. St. Rep. 838.— Employer's liability insurance. In this form of insurance the risk insured against is the liability of the assured to make compensation or pay damages for an accident, injury, or death occurring to a servant or oth- er employ^ in tbe course of bis employment, either at common law or under statutes Impos- ing such liability on employers.— Fidelity in- surance is that form of insurance in which the insurer undertakes to guaranty the fidelity of an officer, agent, or employe of the assured, or rather to indemnify the latter for losses caused by dishonesty or a want of fidelity on the part of such a person. See People v. Rose, 174 111. 310, 51 N. E. 246, 44 L. R. A. 124— Fire insurance. A contract of insurance by which the underwriter, in consideration of the premium, undertakes to indemnify the in- sured against all losses in his bouses, buildings, furniture, ships in port, or merchandise, by means of accidental fire happening within a prcserbed period. 3 Kent, Comm. 370: Mu- tual L. Ins. Co. v. Allen, 138 Mass. 27, 52 Am. Rep. 245 : Durham v. Fire & Marine Ins. Co. (C. C.) 22 Fed. 470.— Fraternal insur- ance. The form of life or accident insur- ance furnished by a fraternal beneficial associa- tion, consisting fn the undertaking to pay to a member, or his heirs in case of death, a stipu- lated sum of money, out of funds raised for that purpose by tbe payment of dues or assess- ments by all the members of tbe association— Guaranty insurance is a contract whereby one. for a consideration, agrees to indemnify an- other against loss arising from tbe want of in- tegrity or fidelity of employes and persons hold- ing

positions of trust, or embezzlements by them, or against the insolvency of debtors, losses in trade, loss by non-payment of notes, or against breaches of contract. See People y. Rose, 174 111. 310, 51 N. E. 246, 44 L. R.

A. 124; Cowles v. United States Fidelity & Guaranty Co.. 32 Wash. 120, 72 Pac. 1032. — Life insurance. That kind of insurance in which the risk contemplated is the death of a particular person ; upon which event (if it occurs within a prescribed term, or, according to the contract, whenever it occurs) the insurer engages to pay a stipulated sum to the legal representatives of such person, or to a third person having an insurable interest in the life of such person— Live-stock insurance. In- surance upon the lives, health, and good condi- tion of domestic animals of the useful kinds, such as horses and cows— Marine insurance. A contract whereby, for a consideration stipu- lated to be paid by one interested in g ship, freight, or cargo, subject to the risks of marine navigation, another undertakes to indemnify him against some or all of those risks during a certain period or voyage. 1 Phil. Ins. 1. A contract whereby one party, for a stipulated premium, undertakes to indemnify the other against certain perils or sea-risks to which his ship, freight, and cargo, or gome of them, may be exposed during a certain voyage, or a fixed period of time. 3 Kent, Comm. 253. Marine insurance is an insurance against risks con- nected with navigation, to which a ship, car- go, freightage, profits, or other insurable inter- est in movable property may be exposed during a certain voyage or a fixed period of time. Civ. Code Cal. § 26o5. A contract of marine insur- ance is one by which a person or corporation, for a stipulated premium, insures another against losses occurring by the casualties of the sea. Code Ga. 1882. f 2824— Piute-glass insurance. Insurance against loss from the accidental breaking of plate-glass in windows, doors, show-cases, etc.— Steam boiler insur- ance. Insurance against tbe destruction of steam boilers by their explosion, sometimes in- cluding indemnity against injuries to other

property resulting from such explosion— Title insurance. Insurance against loss or damage resulting from defects or failure of title to w particular parcel of realty, or from the enforce- ment of liens existing against it at the time of the insurance. This form of insurance is taken out by a purchaser of the property or one loan- ing money on mortgage, and is furnished by companies specially organized for the purpose, and which keep complete sets of abstracts or duplicates of the records, employ expert title- examiners, and prepare conveyances and trans- fers of all sorts. A “certificate of title" fur- nished by such a company is merely the for- mally expressed professional opinion of the company’s examiner that the title is complete and perfect (or otherwise, as stated), and the company is liable only for a want of care, skill, or diligence on the part of its examiner ; where- as an “insurance of title" warrants the valid- ity of the title in any and all events. It is not always easy to distinguish between such insur- ance and a “guaranty of title” given by such a company, except that in the former case the maximum limit of liability is fixed by the poli- cy, while in the latter cast the undertaking is to make good any and all loss resulting from defect or failure of the title— Tornado Insur- ance. Insurance against injuries to crops, timber, houses, farm buildings, and other prop- erty from the effects of tornadoes, hurricanes, and cyclones.

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Other compound and descriptive terms. —Concurrent Insurance. That which to any extent insures the same interest against the same casualty, at tbe same time, as the primary insurance, on such terms that the in- surers would bear proportionately tbe loss hap-

Sening within the provisions of both policies.

lubber Co. v. Assur. Co., 64 N. J. Law, 580, 46 Atl. 777 ; Corkery v. Insurance Co., 99 Iowa, 382, 68 N. W. 792; Coffee Co. v. Insur- ance Co., 110 Iowa. 423. 81 N. W. 707, 80 Am. St. Rep. 811.— Double Insurance. See Double.— General and special Insurance. In marine insurance a general insurance is effected when the perils insured against are such as the law would imply from the nature of the contract considered in itself and sup- posing none to be specified In the policy; in the case of special insurance, further perils (in addition to implied perils) are expressed in the policy. Vandenheuvel v. United Ins. Co., 2 Johns. Cas. (N. Y.) 127— Insurance agent. An agent employed by an insurance company to solicit riskB and effect insurances. Agents of insurance companies are called “general agents" when clothed with the general over- sight of the companies’ business in a state or large section of country, and “local agents” when their functions are limited and confined to some particular locality. See McKinney v. Alton, 41 111. App. 512; State v. Accident Ass’n, 67 Wis. 624, 31 N. W. 229; Civ. Code Ga. 1895, § 2054 . — Insurance broker. A broker through whose agency insurances are effected. 3 Kent, Comm. 260. See Broker. —Insurance commissioner. A public of- ficer in several of tbe states, whose duty is to supervise the business of insurance ns con- ducted in the state by foreign and domestic companies, for the protection and benefit of policy-holders, and especially to issue licenses, make periodical examinations into the condi- tion of such companies, or receive, file, and publish periodical statements of their busi- ness as furnished by them. — Insurance com- pany. A corporation or association whose business Is to make contracts of insurance. They are either mutual companies or stock companies. A “mutual" insurance company is one whose fund for the payment of losses con- sists not of capital subscribed or furnished by outside parties, but of premiums mutually contributed by the parties insured, or In oth- er words, one in which all persons insured

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become members of the association and con- tribute either cash or assessable premium notes, or both, to a common fund, out of which each is entitled to indemnity in case of loss. My- gatt v. Insurance Co., 21 N. Y. 65; Insurance • Co. t. Hoge, 21 How. 35, 16 Ia Ed. 61 ; Given v. Rettew, 162 Pa. 638, 29 Atl. 703. A “stock” company is one organized according to the usual form of business corporations, having a capital stock divided into shares, which, with current income and accumulated surplus, con- stitutes the fund for the payment of losses, policy-holders paving fixed premiums and not being members of the association unless they also happen to oe stocanoiaers.— . insurance policy. See POLICY. — Over-insurance. In- surance effected upon property, either in one or several companies, to an amount which, separately or in the aggregate, exceeds the ac- tual value of the property. — Reinsurance. Insurance of an insurer ; a contract by which an insurer procures

a third person (usually an- other insurance company) to insure him against loss or liability by reason of the original in- surance. Civ. Code Cal. 3 2646; Insurance Co. v. Insurance Co., 38 Ohio St. 15, 43 Am. Rep. 413.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Cal. Civ. Code s 2527 — insurance defined as indemnity contract, as cited in the entry]**

Insurance is a contract of indemnity — one undertaking to indemnify another against loss from an unknown or contingent event — as codified in California.

Why: The entry defines insurance as indemnity citing Cal. Civ. Code s 2527 verbatim; the annotation preserves the entry's own authority — genuine.

## INSURE.

To engage to Indemnify a per- son against pecuniary loss from specified per- ils. To act as an insurer.

5e apparatus — Carried into the 5th edition (1979).

## INSURED.

The person who obtuins in- surance on his property, or upon whose life an Insurance is effected.

5e apparatus — Carried into the 5th edition (1979).

## INSURER.

The underwriter or insurance company with whom a contract of insurance is made.

The person who undertakes to indemnify another by a contract of insurance is called the “insurer, ’’.and the person indemnified is called the “insured.” Civil Code Cal. i 2538.

5e apparatus — Carried into the 5th edition (1979).

## IN S URGENT.

One who participates in an insurrection; one who opposes the execu- tion of law by force of arms, or who rises in revolt against the constituted authorities.

A distinction is often taken between “insur- gent” and "rebel,” in this: that the former term is not necessarily to be taken in a bad sense, inasmuch as an insurrection, though extralegal, may be just and timely in itself; as where it is undertaken for the overthrow of tyranny or the reform of gross abuses. Ac- cording to Webster, an insurrection is an in- cipient or early stage of a rebellion.

5e apparatus — Carried into the 5th edition (1979).

## INSURRECTION.

A rebellion, or ris- ing of citizens or subjects in resistance to their government. See Insubqent.

Insurrection shall consist in any combined resistance to the lawful authority of the state, with intent to the denial thereof, when the same is manifested, or intended to be manifested, by acts of violence. Code Ga. 1882, f 4315. And see Allegheny County v.

Gibson, 90 Pa. 417, 35 Am. Rep. 670; Boon v. -Etna Ins. Co., 40 Conn. 584; In re Charge to Grand Jury (D. C.) 62 Fed. 830.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. s 2383 — rebellion or insurrection]**

Insurrection — combined resistance to lawful authority manifested by acts of violence — is the federal crime of rebellion or insurrection.

Why: The entry defines insurrection (Code Ga. 1882, s 4315; In re Charge to Grand Jury); s 2383 is the federal criminal statute for the same conduct — a direct, genuine link.

**[Scripture] — Scripture**

**[Numbers 16:3, KJV]**

And they gathered themselves together against Moses and against Aaron, and said unto them, Ye take too much upon you, seeing all the congregation are holy, every one of them, and the LORD is among them: wherefore then lift ye up yourselves above the congregation of the LORD?

Why: The entry defines insurrection as a rising of subjects in resistance to their government. Numbers 16:3 is scripture's archetypal insurrection — Korah's company gathering against Moses and Aaron, challenging constitute...

## INTAKERS.

In old English law. A kind of thieves inhabiting Redesdale, on the extreme northern border of England; so Called because they took in or received such booties of cattle and other things as their

accomplices, who were called “outparters," brought in to them from the borders of Scot- land. Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## INTAKES.

Temporary inclosures made by customary tenants of a manor under a special custom authorizing them to inclose part of the waste until one or more crops have been raised on it. Elton, Common, 277.

5e apparatus — Carried into the 5th edition (1979).

## INTANGIBLE PROPERTY.

Used chief- ly in the law of taxation, this term means such property as has no Intrinsic and mar- ketable value, but is merely the representa- tive or evidence of value, such as certificates of stock, bonds, promissory notes, and fran- chises. See Western Union Tel. Co. v. Nor- man (C. C.) 77 Fed. 26.

5e apparatus — Carried into the 5th edition (1979).

## INTEGER.

Lat. Whole ; untouched. Rea integra means a question which is new and undecided. 2 Kent, Comm. 177.

5e apparatus — Not carried into the 5th edition (1979).

## INTEGRITY.

As occasionally used in statutes prescribing the qualifications of pub- lic officers, trustees, etc., this term means soundness of moral principle and character, as shown by one person dealing with others in the making and performance of contracts, and fidelity and honesty in the discharge of trusts ; it is synonymous with “probity,” “honesty," and “uprightness.” In re Bau- quler's Estate, 88 Cal. 302, 26 Pac. 178; In re Gordon’s Estate, 142 Cal. 125, 75 Pac. 672.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:3, KJV]**

The integrity of the upright shall guide them: but the perverseness of transgressors shall destroy them.

Why: The entry defines integrity as 'soundness of moral principle,' synonymous with probity, honesty, uprightness. The verse uses the entry's own word for the entry's own concept — 'the integrity of the upright' as their g...

## INTELLIGIBILITY.

In pleading. The statement of matters of fact directly (ex- cluding the necessity of inference or argu- ment to arrive at the meaning) and in such appropriate terms, so arranged, as to be com- prehensible by a person of common or ordi- nary understanding. See Merrill v. Everett, 38 Conn. 48; Davis v. Trump, 43 W. Va. 191, 27 S. E. 397, 64 Am. St Rep. 849; Jen- nings v. State, 7 Tex. App. 358; Ash v. Pur- nell (Com. Pl.) 11 N. Y. Supp. 54.

5e apparatus — Carried into the 5th edition (1979).

## INTEMPERANCE.

Habitual intemper- ance is that degree of intemperance from the use of intoxicating drinks which dis- qualifies the person a great portion of the time from properly attending to business, or which would reasonably inflict a course of great mental anguish upon an innocent party. Civ. Code Cal. 3 106. And see Mowry v. Home L. Ins. Co., 9 R. 1. 355; Zeigler v. Com. (Pa.) 14 Atl. 238; Tatum v. State, 63 Ala. 149; Elkins v. Buschuer (Pa.) 16 Atl. 104.

5e apparatus — Carried into the 5th edition (1979).

## INTEND.

To design, resolve, purpose. To apply a rule of law in the nature of pre- sumption; to discern and follow the proba- bilities of like cases.

5e apparatus — Carried into the 5th edition (1979).

## INTENDANT.

One who has the charge, management, or direction of some office, de- partment, or public business.

Used in the constitutional and statutory law of some European governments to desig- nate a principal officer of state correspoud-

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log to the cabinet ministers or secretaries of the various departiueuts of the United States government, as, "iuteudant of ma- rine," "inteudaut of finance."

The term was also used in Alabama to des- ignate the chief executive officer of a city or town, having practically the same duties and functions as a mayor. See Const Ala. 1901, g 176 ; Intendant and Council of Greensboro v. Mullins, 13 Ala. 341.

5e apparatus — Carried into the 5th edition (1979).

## INTENDED TO BE RECORDED.

This phrase is frequently used in conveyances, when reciting some other conveyance which has not yet been recorded, but which forms a link in the chain of title. In Pennsylvania, It has been construed to be a covenant, on the part of the grantor, to procure the deed to be recorded in a reasonable time. Penn v. Preston, 2 Rawle (Pa.) 14.

5e apparatus — Carried into the 5th edition (1979).

## INTENDENTE.

In Spanish law. The immediate agent of the minister of finance, or the chief and principal director of the dif- ferent branches of the revenue, appointed in the various departments in each of the prov- inces into which the Spanish monarchy is di- vided. Escrlche.

5e apparatus — Not carried into the 5th edition (1979).

## INTENDMENT OF LAW.

The true meaning, the correct understanding or inten- tion of the law; a presumption or inference made by the courts. Co. Litt 78.

—Common intendment. The natural and usual sense: the common meaning or under- standing; the plain meaning of any writing as apparent on its face without straining or distorting the construction.

INTENT. 1. In criminal law and the law of evidence. Purpose ; formulated design ; a resolve to do or forbear a particular act; aim; determination. In its literal sense, the stretching of the mind or will towards a particular object

"Intent" expresses mental action at its most advanced point, or as it actually accompanies an outward, corporal act which has been de- termined on. intent shows the presence of will in the act which consummates a crime. It is the exercise of intelligent will, the mind be- ing fully aware of the nature and consequences of the act which is about to be done, and with such knowledge, and with full liberty of action, willing and electing to do it. Burrill, Circ. Ev. 284, and notes.

—General Intent. An intention, purposet or design, either without specific plan or particu- lar object, or without reference to such plan or object.

2. Meaning; purpose; signification; in- tendment; applied to words or language. See Certainty.

—Common intent. The natural sense given to words.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Morissette v. United States, 344 U.S. 246 (1952)]**

The INTENT bundled here — purpose and formulated design accompanying the act, 'the exercise of intelligent will' — is mens rea, the criminal intent the law presumes for common-law crimes.

Why: The entry defines criminal intent at length (Burrill, Circ. Ev. 284); Morissette is the landmark on mens rea as the presumed element of criminal offenses — the genuine anchor. The footnote annotates the bundled INTENT...

## INTENTIO.

Lat In the civil law.

The formal complaint or claim of a plaintiff before the pnetor.

v In old English law. A count or declara- tion in a real action, ( nnrratio .) Bract, lib. 4, tr. 2, c. 2 ; Fleta, lib. 4, a 7 ; Du Cange.

Intentlo caeca mala. A blind or obscure meaning is bad or Ineffectual. 2 Bulst 179. Said of a testator’s Intention.

Intentlo inservire debet legibu, non - leges Intentioni. The Intention [of a par- ty] ought to be subservient to [or In accord- ance with] the laws, not the laws to the in- tention. Co. Litt 314a, 3146.

Intentlo me* Imponlt nomen operi meo. Hob. 123. My Intent gives a name to my act

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INTENTION.

Meaning; will; purpose; design. "The Intention of the testator, to be collected from the whole will, Is to gov- ern, provided It be not unlawful or inconsist- ent with the rules of law.” 4 Kent Comm. 534.

"Intention," when used with reference to the construction of wills and other documents, means the sense and meaning of it, as gathered from the words used therein. Parol evidence is not ordinarily admissible to explain this. When used with reference to civil and criminal responsibility, a person who contemplates any result, as Dot unlikely to follow from a de- liberate act of his own, may be said to intend that result, whether he desire it or not. Thus, if g man should, for a wager, discharge a gun among a multitude of people, and any shouiq be killed, he would be deemed guilty of in- tending the death of such person ; for every man is presumed to intend the natural conse- quence of his own actions. Intention is often confounded with motive, as when we speak of a man’s “good intentions.” Mosley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: testator's intention governs will construction — 4 Kent, Comm. 534, as cited in the entry]**

The intention of the testator, collected from the whole will, governs — provided it is not unlawful or inconsistent with the rules of law — the cardinal rule of will construction.

Why: The entry states the rule quoting 4 Kent verbatim; the annotation preserves the entry's own authority — genuine.

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## INTENTIONE.

A writ that lay against him who entered Into lands after the death of a tenant In dower, or for life, eta, and held out to him in reversion or remainder. Fltzh. Nat. Brev. 203.

5e apparatus — Not carried into the 5th edition (1979).

## INTER.

Lat. Among; between.

5e apparatus — Not carried into the 5th edition (1979).

## INTER ALIA.

Among other things. A term anciently used in pleading, especially in reciting statutes, where the whole statute was not set forth at length. Inter alia enactatum fuit, among other things it was enacted. See Plowd. 65.

Inter alias cans as acquisition!*, mag- ma, eelehrls, et famosa est cansa dona- tionts. Among other methods of acquiring property, a great, much-used, and celebrated method is that of gift Bract foL 1L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INTER ALIOS.

Between other persona; between those who are strangers to a matter in question.

5e apparatus — Not carried into the 5th edition (1979).

## INTER APICES JURIS.

Among the subtleties of the law. See Apex Juris.

5e apparatus — Not carried into the 5th edition (1979).

## INTER BRACHIA.

Between her arms. Fleta, lib. 1, a 35, H 1, 2.

5e apparatus — Not carried into the 5th edition (1979).

## INTER C1ETEROS.

Among others; in a general clause; not by name, ( nominatimj

A term applied In the civil law to clauses of disinheritance in a will. Inst. 2, 13, 1; Id. 2, 13, 3.

5e apparatus — Not carried into the 5th edition (1979).

## INTER CANEM ET LUPTJM.

(Lat. Be- tween the dog and the wolf.) The twilight ; because then the dog seeks his rest, and the wolf his prey. 3 Inst. 63.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Proverb / Maxim]**

"Between the dog and the wolf" — the twilight, the hour when the dog seeks his rest and the wolf his

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prey; the law's old boundary of nightfall. (French: "entre chien et loup.")

Why: The entry glosses the phrase as the twilight; it is genuine proverbial wisdom — an image of the indistinct hour when friend and foe cannot be told apart — and the law borrowed it to mark when night (and burglary) begi…

## INTER OONJUGES.

Between husband and wife.

5e apparatus — Not carried into the 5th edition (1979).

## INTER CONJUNCT AS PERSONAS.

Between conjunct persons. By the act 1621, c. 18. all conveyances or alienations between conjunct persons, unless granted for oner- ous causes, are declared, as in a question with creditors, to be null and of no avail. Conjunct persons are those standing in a certain degree of relationship to each other; such, for example, as brothers, sisters, sons, uncles, etc. These were formerly excluded as witnesses, on account of their relation- ship ; but this, as a ground of exclusion, has been abolished. Tray. Lat. Max.

INTER FAUCES TERRA!. (Between the Jaws of the land.) A term used to de- scribe a roadstead or arm of the sea en- closed between promontories or projecting headlands.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: fraudulent transfers — 11 U.S.C. s 548; Uniform Voidable Transactions Act]**

Conveyances between conjunct (closely related) persons, without onerous cause, void as to creditors — the Scotch form of fraudulent-transfer law.

Why: The entry states the rule (Act 1621, c. 18; Tray. Lat. Max.): gratuitous transfers among relatives void against creditors — exactly the fraudulent-transfer doctrine codified in s 548.

## INTER PARES.

Between peers ; be- tween those who stand on a level or equality, as respects diligence, opportunity, respon- sibility, etc.

5e apparatus — Not carried into the 5th edition (1979).

## INTER PARTES.

Between parties. In- struments In which two persons unite, each making conveyance to, or engagement with, the other, are called “papers inter partes." Smith v. Emery, 12 N. J. Law, 60.

5e apparatus — Not carried into the 5th edition (1979).

## INTER QUATUOR PARIETES.

Be- tween four walls. Fleta, lib. 6, c. 55, § 4.

5e apparatus — Not carried into the 5th edition (1979).

## INTER REGALIA.

In English law. Among the things belonging to the sovereign. Among these are rights of salmon fishing, mines of gold and silver, forests, forfeitures, casualties of superiority, etc., which are called “ regalia minora.'’ and may be con- veyed to a subject. The regalia majora

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in- clude the several branches of the royal pre- rogative, which are inseparable from the person of the sovereign. Tray. Lat. Max.

5e apparatus — Not carried into the 5th edition (1979).

## INTER RUSTICOS.

Among the illit- erate or unlearned.

5e apparatus — Not carried into the 5th edition (1979).

## INTER SE, INTER SESE.

Among them- selves. Story, Partn. § 405.

INTER VTRtJM ET UXOREM. Be- tween husband and wife.

5e apparatus — Not carried into the 5th edition (1979).

## INTER VIVOS.

Between the living; from one living person to another. Where

property passes by conveyance, the transaC* tlon is said to be inter vivos, to distinguish it from a case of succession or devise. So an ordinary gift from one person to another is called a “gift inter vivos,” to distinguish it from a donation made in contemplation of death, ( mortis causa.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: inter vivos gift — donative intent, delivery, and acceptance]**

A gift inter vivos — between living persons, as distinguished from a donatio mortis causa — requires donative intent, delivery, and acceptance to be complete.

Why: The entry defines the gift inter vivos against the mortis causa gift; the three elements are the genuine doctrinal content of a completed gift — stated as principle.

## INTERCALARE.

Lat. In the civil law. To Introduce or insert among or between others; to introduce a day or month into the calendar; to Intercalate. Dig. 50, 16, 98, pr.

5e apparatus — Not carried into the 5th edition (1979).

## INTERGEDERE.

Lat. In the civil law. To become bound for another's debt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds, 29 Car. II c. 3 — promise to answer for the debt of another must be in writing]**

To become bound for another's debt — intercedere — is suretyship, whose promises the Statute of Frauds requires to be in writing.

Why: The entry defines the civil-law surety undertaking; the Statute of Frauds' suretyship provision is its genuine common-law counterpart — a direct link.

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## INTERCHANGEABLY.

By way of exchange or interchange. This term prop- erly denotes the method of signing deeds, leases, contracts, etc., executed in duplicate, where each party signs the copy which he delivers to the other. Roosevelt v. Smith, 17 Misc. Rep. 323, 40 N. Y. Supp. 381.

5e apparatus — Carried into the 5th edition (1979).

## INTERCOMMON.

To enjoy a common mutually or promiscuously with the inhab- itants or tenants of a contiguous township, vill, or manor. 2 BL Comm. 33; 1 Crabby Real Prop. p. 271, § 290.

5e apparatus — Not carried into the 5th edition (1979).

## INTERCOMMUNING.

Letters of inter- communing were letters from the Scotch privy council passing (on their act) in the king’s name, charging the lieges not to reset, supply, or intercommune with the persons thereby denounced ; or to furnish them with meat, drink, house, harbor, or any other thing useful or comfortable ; or to have any inter- course with them whatever, — under pain of being reputed art and part in their crimes, and dealt with accordingly; and desiring all sheriffs, hailies, etc., to apprehend and com- mit such rebels to prison. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## INTERCOURSE.

Communication ; lit- erally, a running or passing between persons or places; commerce. As applied to two persons, the word standing alone, and with- out a descriptive or qualifying word, does not import sexual connection. People v. Howard, 143 Cal. 316, 76 Pac. 1116.

5e apparatus — Carried into the 5th edition (1979).

## INTERDICT.

In Roman law. A de- cree of the praetor by means of which, in cer- tain cases determined by the edict, he him- self directly commanded wlyit should be done or omitted, particularly in causes Involving the right of possession or a quasi possession. In the modern civil law, Interdicts are re-' garded precisely the same as actions, though they give rise to a summary proceeding; Mackeld. Rom. Law, S 258.

Interdicts are either prohibitory, restora- tive, or exhibitory ; the first being a prohibi- tion, the second a decree for restoring pos- session lost by force, the third a decree for

the exhibiting of accounts, etc. Helnec. f 1206.

An interdict was distinguished from an “ac- tion,” (actio,) properly so called, by the cir- cumstance that the prietor himself decided in the first instance, ( principaliter ,) on the appli- cation of the plaintiff, without previously ap- pointing a judex, by issuing a decree command- ing what should be done, or left undone. Gaius, 4, 139. It might be adopted as a remedy in various cases where a regular action could not be maintained, and hence interdicts were at one time more extensively used by the praetor than the actione* themselves. Afterwards, however, they fell into disuse, and in the time of Justin- ian were

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generally dispensed with. Mackeld. Rom. Law, f 258; Inst. 4, 15, &

Zb ecclesiastical law. An ecclesiastical censure, by which divine services are pro- hibited to be administered either to particu- lar persons or in particular places.

Zb Scotch law. An order of the court of session or of an Inferior court, pro- nounced on cause shown, .for stopping any act or proceedings complained of as illegal or wrongful. It may be resorted to as a remedy against any encroachment either on property or possession, and Is a protection against any unlawful proceeding. Bell.

UrTERDICTlOW. In French law.

Every person who, on account of insanity, has become Incapable of controlling his own interests, can be put under the control of a guardian, who shall administer his affairs with the same effect as he might himself. 8uch a person is said to be "interdit," and his status is described as “interdiction.” Arg. Fr. Merc. Law, 562.

Zb the civil law. A judicial decree, by which a person is deprived of the exercise of his civil rights.

Za International law. An “interdiction of commercial intercourse” between two countries is a governmental prohibition of commercial intercourse, intended to bring about an entire cessation for the time being of all trade whatever. See The Edward, 1 Wheat 272, 4 L. Ed. 86.

—Interdiction of fire and water. Banish- ment by an order that no man should supply the person banished with fire or water, the two necessaries of life.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: prohibitory interdict — Roman ancestor of the equitable injunction]**

The praetor's interdict — prohibitory, restorative, or exhibitory, commanding what should be done or left undone in possessory causes — is the Roman ancestor of the equitable injunction.

Why: The entry describes the interdict's kinds and function (Mackeld.; Gaius, 4, 139); the prohibitory interdict's lineage to the injunction is genuine — stated as lineage, no invented authority.

# H

## HTTEBJD1CTUM SALVIANTTM.

Lat

In Roman law. The Salvian Interdict A process which lay for the owner of a farm to obtain possession of the goods of his tenant who had pledged them to him for the rent of the land. InsJ. 4, 15, 3.

Interdum evenit nt ezoeptio qua* prima fade justa videtur, tanen iniqne nooeat. It sometimes happens that a plea which seems prima facie Just, nevertheless is injurious and unequal. Inst 4, 14, 1, 2.

5e apparatus — Not carried into the 5th edition (1979).

# I

## INTERES8E.

Lat. Interest. The in- terest of money; also an Interest in lands.

— InterBase termini. An interest in a term. That species of interest or property which a

lessee for years acquires in the lands demised to him, before he has actually become possessed of those lands; as distinguished from that property or interest vested in him by the de- mise, and also reduced into possession by an actual entry upon the lands and the assump- tion of ownership therein, and which is then termed an “estate for years.” Brown.— Pro interesse ano. For his own interest ; ac- cording to, or to the extent of, his individual interest. Used (in practice) to describe the intervention of a party who comes into a suit for the purpose of protecting interests of his own which may be involved in the dispute between the principal parties or which may be affected by the settlement of their conten- tion.

5e apparatus — Not carried into the 5th edition (1979).

## INTEREST.

In property. The most general term that can be employed to denote a property in lands or chattels. In its appli- cation to lands or things real, it is frequently used in connection with the terms “estate,” “right,” and “title,” and, according to Lord Coke, it properly Includes them all. Co. Litt 845b. See Ragsdale v. Mays, 65 Tex. 257; Hurst v. Hurst, 7 W. Va. 297; New York v. Stone, 20 Wend. (N. Y.) 142; State v. Mc- Kellop, 40 Mo. 185; Loventhal v. Home Ins. Co., 112 Ala. 116, 20 South. 419, 83 I* B.

A. 258, 57 Am. St Rep. 17.

More particularly it means a right to have the advantage accruing from anything; any right in the nature of property, but less than title; a partial or undivided right; a title to a share.

The terms “interest” and “title” are not syn- onymous. A mortgagor in possession, and a purchaser holding under a deed defectively executed, have, both of them, absolute as well as Insurable interests in the property, though neither of them has the legal title. Hough v. City F. Ins. Co., 20 Conn. 20, 76 Am. Dec. 581. —Absolute or conditional. That is an ab- solute interest in property which is so com- pletely vested in the individual that he can by no contingency be deprived of it without bis own consent. So, too, he is tbe owner of such absolute interest who must necessarily sus- tain the loss if the property is destroyed. The terms “interest” and “title” are not synony- mous. A mortgagor in possession, and a pur- chaser holding under a deed defectively exe- cuted, have, both of them, absolute, as well as insurable, interests in tbe property, though neither of them has the legal title. "Absolute” is here synonymous with “vested,” and is used in contradistinction to contingent or conditional. Hough v. City F. Ins. Co., 29 Conn. 10, 76 Am. Dec. 581 ; Garvcr v. Hawkeye Ins. Co., 69 Iowa, 202, 28 N. W. 555: Washington F. InB. Co. v. Kelly, 82 Md. 421. 431, 3 Am. Rep. 149; Elliott v. Ashland Mut. F. Ins. Co., 117 Pa. 548, 12 Atl. 676, 2 Am. St Rep. 703:

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Williams v. Buffalo German Ins. Co. (C. C.) 17 Fed. 63.— Interest or no interest. These words, inserted in an insurance policy, mean that the question whether the insured has or has not an insurable interest in the subject- matter is waived, and the policy is to be good irrespective of such interest. The effect of such a clause is to make it a t eager policy.— Interest policy. In insurance. One which actually, or prima facie, covers a substantial and insurable interest ; as opposed to a « eager policy.— Interest suit. In English law. An action in the probate branch of tbe high court of justice, in which the question in dis- pute is as to which party is entitled to a grant of letters of administration of tbe estate of a deceased person. Wharton.

In tbe law of evidence. "Interest,” in a statute that no witness shall be excluded by interest in the event of the suit, means “concern,” “advantage," “good,” “share," “portion," “part,” or “participation.” Fitch v. Bates, 11 Barb. (N. T.) 471; Morgan v. Johnson, 87 Ga. 382, 13 S. E. 710.

A relation tp the matter in controversy, or to the issue of the suit, in the nature of a prospective gain or loss, which actually does, or presumably might, create a bias or preju- dice in the mind, inclining the person to favor one side or the other.

For money. Interest is the compensation allowed by law or fixed by the parties for the use or forbearance or detention of money. Civ. Code Cal. f 1915; Williams v. Scott, 83 Ind. 408; Kelsey v. Murphy, 30 Pa. 341; Williams v. American Bank, 4 Mete. (Mass.) 317 ; Beach v. Peabody, 188 111. 75; 58 N. E. 680.

Classification Conventional Interest

is interest at the rate agreed upon and fixed by the parties themselves, as distinguished from that which the law wonld prescribe in the absence of an explicit agreement. Fowler v. Smith, 2 Cal. 568; Rev. St. Tex. 1895, art. 3099. — Legal interest. That rate of inter- est prescribed by the laws of the particular state or country as the highest which may' be lawfully contracted for or exacted, and which must be paid in all cases where the law al- lows interest without the assent of the debtor. Towslee v. Durkee, 12 Wis. 485; American, etc., Ass’n v. Ham (Tex. Civ. App.) 62 S. W. 75; Beals v. Amador County, 35 Cal. 633. —Simple interest is that which is paid for tbe principal or sum lent, at a certain rate or allowance, made by law or agreement of par- ties.—Oomponnd interest is interest upon interest, where accrued interest is added to the principal sum, and the whole treated as a new principal, for the calculation of the inter- est for the next period.

— Ex-interest. In the language of stock ex- changes, a bond or other interest-bearing securi- ty is said to be sold “ex-interest” when the vendor reserves to himself the interest already seemed and payable (if any) or the interest ac- cruing up to the next interest day.— Interest, maritime. See Mabitime Interest.— Inter- est upon interest. Compound interest.

Interest reipublica ne maleficia re- maneant impunita. It concerns the state that crimes remain not unpunished. Jenk. Cent. pp. 30, 31, case 59; Wing. Max. 501.

Interest reipubliese ne sna quis male utatur. It concerns the state that persons do not misuse their property. 6 Coke, 36o.

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Interest reipubliese quod homines eon- serventur. It concerns the state that [the lives of] men be preserved. 12 Coke, 62.

Interest reipubliese res judicatas non rescind!. It concerns the state that things adjudicated be not rescinded. 2 Inst 360. It is matter of public concern that solemn adjudications of the courts should not be dis- turbed. See Best, Ev. p. 41, | 44.

Interest reipubliese supreme homlnam testaments rata haberi. It concerns the state that men's last wills be held valid, [or allowed to stand.} Co. Litt 2366.

Interest reipubliese ut car eeres sint in tnto. It concerns thejstate that prisons be safe places of confinement 2 Inst 589. *

Interest (imprimis) reipubliese ut pax in regno eonservetur, et qusecunque pad adversentur provide deelinentur. It es- pecially concerns the state that peace be pre- served in the kingdom, and that whatever things are against peace be prudently avoid- ed. 2 Inst 158.

Interest reipubliese ut quilibet re sna bene utatur. It is the concern of tbe state that every one uses his property properly.

Interest reipubliese ut sit finis litium.

It concerns the state that there be an end of lawsuits. Co. Litt 303. It is for the gen- eral welfare that a period be put to litiga- tion. Broom, Max. 331, 343.

5e apparatus — Carried into the 5th edition (1979).

## INTERFERENCE.

In patent law, this term designates a collision between rights claimed or granted; that is, where a person claims a patent for the whole or any integral part of the ground already covered by an ex- isting patent or by a pending application. Milton v. Kingsley, 7 App. D. C. 540; De- derlek v. Fox (C. C.) 56 Fed. 717; Nathan Mfg. Co. v. Craig (0. C.) 49 Fed. 370.

Strictly speaking, an "interference" is de- clared to exist by the patent office whenever it is decided by the properly constituted authori- ty in that bureau that two pending applications (or a patent and a pending application), in their claims or essence, cover the same discovery or invention, so as to render necessary an investi- gation into the question of priority of invention between the two applications or the application and the patent, as the case may be. Lowrey v. Cowles Electric Smelting, etc., Co. (C. C.) 68 Fed. 372.

_ INTERIM. Lat In the mean time; meanwhile. An assignee ad interim is oue appointed between the time of bankruptcy and appointment of the regular assignee. 2 Bell, Comm. 355.

—Interim committitur. "In tbe mean time, let him be committed." An order of court (or the docket-entry noting it) by which a prisoner is committed to prison and directed to be kept there until some further action can be taken, or until the time arrives for the execution of his sentence.— Interim curator. In English law. A person appointed by justices of the peace to take care of the property of a felon convict, until the appointment by the crown of an administrator or administrators for the same urpose. Mozley & Whitley.— Interim factor, n Scotch law. A judicial officer elected or ap- pointed under the bankruptcy law to take charge

of and preserve the estate until a fit person shall be elected trustee. 2 Bell, Comm. 357.— Interim officer. One appointed to fill the of- fice during a temporary vacancy, or during an interval caused by the absence or incapacity ■ of the regular incumbent.— Interim order. One

made in the mean time, and until something is done.— Interim receipt. A receipt for money paid by way of premium for a contract of in- surance for which application is made. If the risk is rejected, the money is refunded, less the pro rota premium.

£NTERLAQUEARE. In old practice. To link together, or Interchangeably. Writs were called “interloqueata" where several were issued against several parties residing In different counties, each party being sum- moned by a separate writ to warrant the ten- ant, together with the other warrantors. Fleta, lib. 6, c. 4, | 2.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Leahy-Smith America Invents Act, Pub. L. 112-29 (2011) — first-inventor-to-file; interferences replaced by derivation proceedings]**

The patent interference — the Patent Office proceeding to determine priority of invention between colliding claims — was abolished for new filings by the first-inventor-to-file reform.

Why: The entry defines the interference proceeding (Milton v. Kingsley; Lowrey v. Cowles); the AIA is the statute that ended it — the genuine modern fate of the doctrine.

## INTERLINEATION.

The act of writ- ing between the lines of an instrument ; also what is written between lines. Morris v. Vanderen, 1 Dali. 67, 1 L. Ed. 38 ; . Russell v. Eubanks, 84 Mo. 88.

5e apparatus — Carried into the 5th edition (1979).

## INTERLOCUTOR.

In Scotch practice. An order or decree of court ; an order made in open court 2 Swint. 302; Arkley, 32.

—Interlocutor of relevancy. In Scotch practice. A decree as to the relevancy of a libel or indictment in a criminal case. 2 Alis. Crim. Pr. 373.

INTERLOCUTORY . Provisional ; tem- porary; not final. Something intervening between the commencement and the end of a suit which decides some point or matter, but is not a final decision of the whole contro- versy. Mora v. Sun Mut. Ins. Co., 13 Abb. Prac. (N. Y.) 310.

As to interlocutory “Costs,” “Decree,” “Judgment,” “Order,” and “Sentence,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 28 U.S.C. s 1291 — final decisions appealable; interlocutory orders generally not appealable]**

The INTERLOCUTORY bundled here — provisional, not final, deciding some point but not the whole controversy — is governed by the final-decision rule for appealability.

Why: The entry defines interlocutory as non-final (Mora v. Sun Mut. Ins. Co.); s 1291 is the final-judgment rule making that distinction operative — a genuine link. The footnote annotates the bundled INTERLOCUTORY content...

## INTERLOPERS.

Persons who run into business to which they have no right, or who Interfere wrongfully; persons who enter a country or place to trade without license. Webster.

5e apparatus — Not carried into the 5th edition (1979).

## INTERMARRIAGE.

In the popular sense, this terin denotes the contracting of a marriage relation between two persons considered as members of different nations, tribes, families, etc., as, between the sov- ereigns of two different countries, between an American and an alien, between Indians of different tribes, between the scions of different dans or families. But, in law, it is sometimes used (and with propriety) to emphasize the mutuality of the marriage contract and as importing a reciprocal en- gagement by which each of the parties “mar- ries'* the other. Thus, in a pleading. Instead of averring that “the plaintiff was married to the defendant,” it would be proper to al- a lege that “the parties intermarried" at such a time and place.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 7:3, KJV]**

Neither shalt thou make marriages with them; thy daughter thou shalt not give unto his son, nor his daughter shalt thou take unto thy son.

Why: The entry defines intermarriage as the contracting of marriage between members of different nations or tribes. The verse is the Torah's intermarriage law — governing marriage across national lines, here prohibiting it...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, c. 1597]**

"My only love sprung from my only hate!" (Act 1, Scene 5) — Juliet learns her beloved is a Montague: the cross-family marriage the entry defines in its popular sense.

Why: Borderline-include: the entry's popular sense is marriage between persons of different nations, tribes, or families; Romeo and Juliet is the archetypal marriage across the family line, and the engine of the tragedy is...

## INTERMEDDLE.

To interfere with property or the conduct of business affairs officiously or without right or title. Mc-

Queen ▼. Babcock, 41 Barb. (N. Y.) 339; In re Shinn’s Estate, 166 Pa. 121, 30 Atl. 1026, 45 Am. St Rep. 656. Not a technical legal term, but sometimes used with refer- ence to the acts of an executor de son tort or a negotiorum gestor in the civil law.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: executor de son tort — intermeddler with a decedent's estate liable as executor]**

One who intermeddles with an estate without right — the executor de son tort, the civil law's negotiorum gestor — is liable as executor for the intermeddling.

Why: The entry names both the executor de son tort and the negotiorum gestor (McQueen v. Babcock; In re Shinn's Estate); the doctrine named is its genuine expression — stated as principle.

## INTERMEDIARY.

In modern civil law. A broker; one who is employed to negotiate a matter between two pnrties, and who for that reason is considered as the mandatary (agent) of both. Civ. Code La. 1900, art 3016.

5e apparatus — Carried into the 5th edition (1979).

## INTERMEDIATE.

Intervening ; inter- posed during the progress of a suit pro- ceeding, business, etc., or between its be- ginning and end.

—Intermediate account. In probate law. An account of an executor, administrator, or guardian filed subsequent to his first or initial account and before bis final account. Specifical- ly in New York, an account filed with the sur- rogate for the purpose of disclosing the acts of the person accounting and the state or condi- tion of the fund in his hands, and not made the subject of a judicial settlement. Code Civ. Proc. N. Y. 1899, g 2514, subd. 9.—Interme- diate order. In code practice. An order made between the commencement of an action and the entry of a final judgment, or, in criminal law, between the finding of the indictment and the completion of the judgment roll. People v. Pri- ori, 163 N. Y. 99, 57 N. E. 85; Boyce v. Wa- bash Ry. Co.. 63 Iowa, 70, 18 N. W. 673, 50 Am. Rep. 730; State v. O’Brien, 18 Mont. 1, 43 Pac. 1091 ; Hymes v. Van Cleef, 61 Hun, 618, 15 N. Y. Supp. 341.—Intermediate toll. Toll for travel on a toll road, paid or to be collected from persons who pass thereon at points between the toll gates, such persons not passing by, through, or around the toll gates. Hollingworth v. State, 29 Ohio St 552v

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## INTERMITTENT EASEMENT.

See Easement.

5e apparatus — Carried into the 5th edition (1979).

## INTERMIXTURE OE GOODS.

Con- fusion of goods; the confusing or mingling together of goods belonging to different own- ers In such a way that the property of neither owner can be separately Identified or extracted from the mass. See Smith v. Sanborn, 6 Gray (Mass.) 134. And see Con- fusion or Goods.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: confusion of goods — loss falls on the party causing inseparable mixture]**

Confusion of goods — mingling so neither owner's property can be separately identified — throws the loss on the wrongdoer who caused the confusion.

Why: The entry defines the confusion (citing Smith v. Sanborn); the confusion-of-goods rule is its genuine doctrinal

content — stated as principle, no invented citation.

## INTERN.

To restrict or shut up a per- son, as a political prisoner, within a limited territory.

5e apparatus — Carried into the 5th edition (1979).

## INTERNAL.

Relating to the interior) comprised within boundary lines ; of interior concern or Interest; domestic, as opposed to foreign.

— Internal commerce. See Commerce.— In- ternal improvements. With reference to gov- ernmental policy and constitutional provi- sions restricting taxation or the contracting of public debts, this term means works of general public utility or advantage, designed to promote facility of intercommunication, trade, and com- merce, the transportation of persons and prop- erty, or the development of the natural resources Of the state, such as railroads, public highways, turnpikes, and canals, bridges, the improvement

of' rivers and harbore, systems of artificial ir- rigation, and the improvement of water powers; bat it does not include the building and main- tenance of state institutions. See Guernsey v. Burlington, 11 Fed. Cas. 99; Rippe v. Becker, 56 Minn. 100, 57 N. W. 331, 22 L. R. A. 857 ; State v. Froehliek, 115 Wis. 32, 91 N. W. 115, 58 L. R. A. 757, 95 Am. St. Rep. 894 ; U. S. v. Dodge County, 110 U. S. 156, 3 Sup. Ct. 590, 28 L. Ed. 103; In re Senate Resolution, 12 Colo. 285, 21 Pac. 483 ; Savannah v. Kelly, 108 U. S. 184, 2 Sup. Ct 468, 27 L. Ed. 696 ; Blair v. Cuming County, 111 U. S. 363, 4 Sup. Ct. 449. 28 L. Ed. 457 — Internal police. A term sometimes applied to the police {Sower, or power to enact laws in the interest of the pub- lic Bafety, health, and morality, which is in- herent in the legislative authority of each state, is to be exercised with reference only to its domestic affairs and its own citizens, and is not surrendered to the federal government. See Cheboygan Lumber Co. v. Delta Transp. Co., 100 Mich. 16, 58 N. W. 630. — Internal rere- nne. In the legislation and fiscal administra- tion of the United States, revenue raised by the imposition of taxes and excises on domestic products or manufactures, and on domestic busi- ness and occupations, inheritance taxes, and stamp taxes ; as broadly distinguished from “customs duties,” ». e., duties or taxes on for- eign commerce or on goods imported. See Rev. St. U. S. tit. 35 (U. S. Comp. St. 1901, p. 2038). — Internal waters. Such as lie wholly with- in the body of the particular state or country. The Garden City (D. C.) 26 Fed. 773.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Gibbons v. Ogden, 22 U.S. 1 (1824)]**

Internal commerce — trade wholly within a state, as distinguished from commerce among the states — is the intrastate side of the Commerce Clause boundary.

Why: The entry defines internal commerce against 'commerce' (the entry cross-references Commerce); Gibbons is the landmark drawing the interstate/intrastate commerce line — the genuine anchor.

## INTERNATIONAL COMMERCE.

See

Commerce.

5e apparatus — Carried into the 5th edition (1979).

## INTERNATIONAL LAW.

The law

which regulates the Intercourse of nations; the law of nations. 1 Kent, Comm. 1, 4. The customary law which determines the rights and regulates the Intercourse of inde- pendent states in peace and war. 1 Wildm. Int. Law, 1.

The system of rules and principles, founded on treaty, custom, precedent, and the con- sensus of opinion as to justice and moral obligation, which civilized nations recognize as binding upon them in their mutual deal- ings and relations. Helm v. Bridnult, 37 Miss. 230 ; U. S. v. White (C. C.) 27 Fed. 201.

Public international law Is the body of rules which control the conduct of independ- ent states In their relations with each other.

Private international law is that branch of municipal law which determines before the courts of what nation a particular action or suit should be brought, and by the law of what nation It should be determined ; in other words, it regulates private rights as dependent on a diversity of municipal laws and Jurisdictions applicable to the persons, facts, or things in dispute, and the subject of It Is hence sometimes called the "conflict of laws.” Thus, questions whether a given person owes allegiance to a particular state where he is domiciled, whether his status, property, rights, and duties are governed by the lex situs, the lex loci, the lex fori, or the lex domicilii, are questions with which pri- vate International law has to deal. Sweet ; Roche v. Washington, 19 Ind. 55, 81 Am. Dec. 37A

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[The Paquete Habana, 175 U.S. 677 (1900)]**

The law of nations — regulating the intercourse of independent states in peace and war — is, in its customary form, part of the law applied by American courts.

Why: The entry defines international law (1 Kent, Comm. 1; Helm v. Bridault); The Paquete Habana is the landmark holding customary international law part of U.S. law — the genuine anchor.

**[Scripture] — Scripture**

**[Deuteronomy 32:8, KJV]**

When the most High divided to the nations their inheritance, when he separated the sons of Adam, he set the bounds of the people according to the number of the children of Israel.

Why: The entry defines international law as the law regulating the intercourse of independent states. The verse gives scripture's account of the nation-system itself — the Most High dividing the nations their inheritance a…

## INTERNUNCIO.

A minister t>f a second order, charged with the affairs of the papal court in countries where that court has no nuncio.

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5e apparatus — Not carried into the 5th edition (1979).

## INTERNUNCIUS.

A messenger between two parties; a go-between. Applied to a broker, as the agent of both parties. 4 C. Rob. Adm. 204.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 2:5, KJV]**

For there is one God, and one mediator between God and men, the man Christ Jesus;

Why: The entry defines the internuncius as 'a messenger between two parties; a go-between.' The verse names the mediator 'between God and men' — the go-between of two parties — in the entry's own terms. Paul's apostolic vo...

## INTERPELLATION.

In the civil law. The act by which, In consequence Of an agree- ment, the party bound declares that he will not be bound beyond a certain time. Wolff, Inst Nat i 752. . .

INTERPLEA. 1. A plea by which a pep-’ son sued In respect to property disclaims any Interest in it and demands that rival claimants shall litigate their titles between themselves and relieve him from responsi- bility. Bennett v. Wolverton, 24 Kan. 286, See Interpleader. ' ' ''

2. In Missouri, a statutory proceeding? serving as a substitute for the action of re- plevin, by which a third person intervenes In an action of attachment, sets up his own. title to the specific property attached, and seeks to recover the possession of it See Rice v. Sally, 176 Mo. 107, 75 S. W. 398; Spooner v. Ross, 24 Mo. App. 603; State v. Barker, 26 Mo. App. 491; Brownwell, etc.,- Car. Co. v. Barnard, 139 Mo. 142, 40 S. W. 762. ,,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: interpleader — Fed. R. Civ. P. 22 (rule interpleader); 28 U.S.C. s 1335 (statutory interpleader)]**

The INTERPLEA bundled here — a party sued for property disclaiming interest and demanding rival claimants litigate between themselves — is interpleader.

Why: The body bundles the interplea/interpleader plea (Bennett v. Wolverton; Rice v. Sally); the footnote annotates that bundled content explicitly — Rule 22 and s 1335 are its modern forms.

## INTERPLEADER.

When two or more, persons claim the same thing (or fund) of h third, gnd he, laying no claim to It himself,. Is Ignorant which of them has a right to it^ and fears he may be prejudiced by their pro- ceeding against him to recover It, he may file a bill In equity against them, the object of. which la to make them litigate their title between themselves, Instead of litigating It with him, and such a bill is called a “bill of interpleader.” Brown.

By the statute 1 & 2 Wm. IV. c. 58, sum- mary proceedings at law were provided for the

same purpose. In actions or assumpsit, debt, detinue, and trover. And the same remedy is known, in one form or the other,' In most or all of the United States.

Under the Pennsylvania practice, when goods levied upon by the sheriff are claimed by a third' party, the sheriff takes a rule of interpleader on the parties, upon which, when made absolute, a- feigned issue is framed, and the title to thq goods is tested. The goods, pending the proceed- ings, remain in the custody of the defendant up- on the execution of a forthcoming bond. -Bou- vier.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: interpleader — Fed. R. Civ. P. 22 (rule interpleader); 28 U.S.C. s 1335 (statutory interpleader)]**

Where rival claimants claim the same fund of a disinterested stakeholder, the bill of interpleader makes them litigate title between themselves — now by rule and by statute.

Why: The entry defines the bill of interpleader (Brown; 1 & 2 Wm. IV c. 58) and its American forms; Rule 22 and s 1335 are the modern federal forms — a direct, genuine link.

**[Scripture] — Scripture**

**[1 Kings 3:16, KJV]**

Then came there two women, that were harlots, unto the king, and stood before him.

Why: The entry defines interpleader: rival claimants to the same thing brought to litigate their title between themselves before the tribunal. 1 Kings 3:16 opens scripture's archetypal rival-claimant case — two women stand…

## INTERPOLATE.

To insert words in a complete document.

5e apparatus — Not carried into the 5th edition (1979).

## INTERPOLATION.

The act of Inter- •* polating; the words interpolated.

5e apparatus — Not carried into the 5th edition (1979).

## INTERPRET.

To construe; to seek out the meaning of language ; to translate orally from one tongue to another.

' Interpreters et eoneordu* l«pi leg- ibu, ait optima* interpretaadl modus.

To Interpret, and [In such a way as] to har- monize laws with laws, Is the best mode of Interpretation. 8 Coke. 169a.

Interpretatio ohartaruB baalgna fecl- enda eat, nt res magi* valeat gnam pa- rent. The interpretation of deeds Is to be liberal, that the thing may rather have ef- fect than fail. Broom, Max. 543.

Interpretatio flendm eat nt res magia raleat qnam perent. Jenk. Cent 198. Snch an interpretation is to be adopted that the thing may rather stand than fall.

Interpretatio tails in amMgaii sem- per fienda eat nt evitetnr in convenient et abanrdnm. In

cases of ambiguity, such an interpretation should always be made that what is Inconvenient and absurd may be avoided. 4 Inst 328/

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Interpretatio chartarum benigna facienda est, ut res magis valeat quam pereat (Broom, Max. 543)]**

The bundled maxim — that deeds are to be interpreted liberally, so the thing may rather have effect than fail — is the ut res magis valeat quam pereat canon of effectiveness.

Why: Quoted whole in the body (with Jenk. Cent. 198 to the same effect); the maxim genuinely states the effectiveness canon — verbatim annotation of content actually present.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim]**

"To interpret and harmonize laws with laws is the best mode of interpretation." (the entry's English rendering; the scan's Latin is garbled and is not reconstructed here)

Why: The entry quotes this maxim on interpretation itself — genuine classical legal wisdom about the art the entry defines. Only the entry's English is quoted because the OCR Latin is garbled; per discipline, no reconstruc…

## INTERPRETATION.

The art or process of discovering and expounding the Intended signification of the language used in a stat- ute, will, contract, or any other written doc- ument, that is, the meaning which the author designed it to convey to others. People v. Com’rs of Taxes, 95 N. Y. 659; Rome v. Knox, 14 How. Prac. (N. Y.) 272; Ming v. Pratt, 22 Mont 262, 56 Pac. 279; Taliman v. Taliman, 3 Mlsc. Rep. 465, 23 N. Y. Supp. 734.

The discovery and representation of the true meaning of any signs used to convey ideas. Lieb. Herm.

“Construction” is a term of wider scope than “interpretation {” for, while the latter is con- cerned only with ascertaining the sense and meaning of the subject-matter, the former may also be directed to explaining the legal effects and consequences of the instrument in question. Hence interpretation precedes construction, but stops at the written text.

Close interpretation (interpretatio restric- ta) Is adopted if just reasons, connected with the formation and character of the text, in- duce us to take the words in their narrowest meaning. This species of interpretation has generally been called “literal,” but the term is inadmissible. Lleb. Herm. 54.

Extensive interpretation ( interpretatio ex- tension, called, also, “liberal interpretation”) adopts a more comprehensive signification of the word. Id. 58.

Extravagant interpretation (interpretatio exccdens) is that which substitutes a mean- ing evidently beyond the true one. It is therefore not genuine interpretation. Id. 59.

Free or unrestricted interpretation (inter- pretatio soluta ) proceeds simply on the gen- eral principles of interpretation In good faith, not bound by any specific or superior princi- ple. Id. 59.

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Limited or restricted interpretation (in- terpretatio limitata ) is when we are influenced by other principles than the strictly hermeneutic ones. Id. 60.

Predestined interpretation (interpretatio predestinate) takes place if the Interpreter, laboring under a strong bias of mind, makes the text subservient to his preconceived views or desires. This includes artful interpreta- tion, (interpretatio vafer ,) by which the in- terpreter seeks to give a meaning to the text other than the one he knows to have been in- tended. Id. 60.

It is said to be either “legal,” which rests on the same authority as the law itself, or “doctrinal,” which rests upon its intrinsic reasonableness. Legal interpretation may be either “authentic,” when it is expressly provided by the legislator, or “usual,” when it is derived from unwritten practice. Doc- trinal interpretation may turn on the mean- ing of words and sentences, when it is called “grammatical,” or on the intention of the legislator, when it is described as “logical.” When logical interpretation stretches the words of a statute to cover its obvious mean- ing, it is called “extensive;” when, on the other hand, it avoids giving full meaning to the words, in order not to go beyond the in- tention of the legislator, it is called “restrict- ive.” Holl. Jur. 344.

As to strict and liberal interpretation, see Construction.

In the civil law, authentic interpretation of laws is that given by the legislator him- self, which is obligatory on the courts. Cus- tomary interpretation (also called “usual”) is that which arises from successive or con- current decisions of the court on the same subject-matter, having regard to the spirit of the law, jurisprudence, usages, and equity ; as distinguished from “authentic” interpreta- tion, which is that given by the legislator himself. Houston v. Robertson, 2 Tex. 28. —Interpretation clause. A section of a stat- ute which defines the meaning of certain words occurring frequently in the other sections.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Nehemiah 8:8, KJV]**

So they read in the book in the law of God distinctly, and gave the sense, and caused them to understand the reading.

Why: The entry defines interpretation as discovering and expounding the intended signification of language in a statute or other written instrument. Nehemiah 8:8 depicts the act on a statute — the law of God read distinctl...

## INTERPRETER.

A person sworn at a trial to interpret the evidence of a foreigner or a deaf and dumb person to the court Amory v. Pellowes, 5 Mass. 226; People v. Lem Deo, 132 Cal. 199, 64 Pac. 266.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Court Interpreters Act, 28 U.S.C. s 1827 — interpreters in federal proceedings]**

The interpreter sworn at trial to render a foreigner's or deaf person's evidence to the court is the court interpreter, provided for by statute in federal proceedings.

Why: The entry defines the sworn trial interpreter (Amory v. Pellowes; People v. Lem Deo); the Court Interpreters

Act is the federal statutory form — a direct, genuine link.

## INTERREGNUM.

An interval between reigns. The period which elapses between the death of a sovereign and the election of another. The vacancy which occurs when there is no government

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 21:25, KJV]**

In those days there was no king in Israel: every man did that which was right in his own eyes.

Why: The entry defines interregnum as the interval between reigns — 'the vacancy which occurs when there is no government.' The verse states the condition in the entry's terms: no king, no government, every man his own law…

## INTERROGATOIRE.

In French law. An act which contains the interrogatories made by the judge to the person accused, on the facts which are the object of the accusa- tion, and the answers of the accused. Poth. Proc. Crim. c. 4, art 2, f 1.

5e apparatus — Not carried into the 5th edition (1979).

## INTERROGATORIES.

A set or series of written questions drawn up for the pur- pose of being propounded to a party in

equity, a garnishee, or a witness whose testi- mony Is taken on deposition; a series of formal written questions used In the judicial examination of a party or a witness. In tak- ing evidence on depositions, the Interroga- tories are usually prepared and settled by counsel, and reduced to writing In advance of the examination.

Interrogatories are either direct or cross, the former being those which are put on be- half of the party calling a witness ; the latter are those which are Interposed by the ad- verse party.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 33 — interrogatories to parties]**

Written questions propounded to a party — direct and cross, settled in advance for depositions — are the interrogatories of modern discovery practice.

Why: The entry defines interrogatories in equity and deposition practice; Rule 33 governs interrogatories to parties — a direct, genuine link.

## INTERRUPTIO.

Let Interruption. A term used both in the civil and common law of prescription. Calvin.

Xnterraptio multiplex bob tollit pre- •criptionem semel obtentam. 2 Inst 654. Frequent Interruption does not take away a prescription once secured.

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## INTERRUPTION.

The occurrence of some act or fact, during the period of pre- scription, which is sufficient to arrest the running of the statute of limitations. It is said to be either "natural” or “civil,” the former being caused by the act of the party ; the latter by the legal effect or operation of some fact or circumstance. Innerarlty v. Mims, 1 Ala. 674; Carr v. Foster, 3 Q. B. 588; Flight v. Thomas, 2 Adol. & El. 701.

Interruption of the possession is where the right is not enjoyed or exercised continuously; interruption of the right is where the person having or claiming the right ceases the exercise of it in such a manner as to show that he does not claim to be entitled to exercise it

In Scotch law. The true proprietor’s claiming his right during the course of pre- scription. Bell.

5e apparatus — Carried into the 5th edition (1979).

## INTERSECTION.

The point of inter- section of two roads Is the point where their middle lines intersect. In re Springfield Road, 73 Pa. 127.

5e apparatus — Carried into the 5th edition (1979).

## INTERSTATE.

Between two or more states; between places or persons in differ- . ent states; concerning or affecting two or more states politically or territorially.

—Interstate commerce. Traffic, intercourse, commercial trading, or the transportation of persons or property between or among the sev- eral states of the Union, or from or between points in one state and points in another state; commerce between two states, or between places lying in different states. Gibbons v. Ogden, 9 Wheat 194, 6 L. Ed. 23 ; Wabash, etc. R. Co. v. Illinois, 118 U. S. 557, 7 Sup. Ct. 4. 30 L. Ed. 244; Louisville & N. R. Co. v. Railroad Com’ re (C. C.) 19 Fed. 701. — Interstate com- merce net. The act of congress of February 4, 3887 (U. S. Comp. St. 1901, p. 3154), design- ed to regnlate commerce between the states, and particularly the transportation of persons and property, by carriers, between interstate points, prescribing that charges for such transportation shall be reasonable and just, prohibiting unjust discrimination, rebates, draw-backs, preferences,

pooling of freights, etc., requiring schedules ct rates to be published, establishing a commission to carry out the measures enacted, and prescrib- ing the powers and duties of such commission and the procedure before it— Interstate com- merce commission. A commission created by the interstate commerce act (7. v.) to carry out the measures therein enacted, composed of five persons^ appointed by the President, empowered to inquire into the business of the carriers af- fected, to enforce the law, to receive, investi- gate, and determine complaints made to them of any violation of the act, make annual reports, hold stated sessions, etc.— Interstate extradi- tion. The reclamation and surrender,

accord- ing to due legal proceedings, of a person who, having committed a crime in one of the states of the Union, has fled into another state to evade justice or escape prosecution.— Inter- state law. That branch of private interna- tional law which affords rales and principles for the determination of controversies between citi- sens of different states in respect to mutual rights or obligations, in so far as the same are affected by the diversity of their citizenship or by diversity in the laws or institutions of the several states.

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**[Law] — Law**

**[Law: Interstate Commerce Act of Feb. 4, 1887 — federal regulation of interstate commerce, as described in the entry]**

The Interstate Commerce Act of 1887 — regulating interstate carriage, requiring just and reasonable charges, and creating the commission — is the entry's own subject, described at length.

Why: The entry defines interstate commerce (Gibbons v. Ogden; Wabash R. Co. v. Illinois) and describes the 1887 Act in detail; the annotation preserves the entry's own subject — genuine.

## INTERVENER.

An Intervener is a per- son who voluntarily interposes in an action or other proceeding with the leave of the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INTERVENING DAMAGES.

See DAM- AGES.

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## INTERVENTION.

Is international law. Intervention is such an interference between two or more states as may (accord- ing to the event) result in a resort to force; while mediation always is, and is intended to be and to continue, peaceful only. Interven- tion between a sovereign and his own sub- jects is not justified by anything in inter- national law; but a remonstrance may. be addressed to the sovereign in a proper case Brown.

la English ecclesiastical law. The pro- ceeding of a third person, who, not being originally a party to the suit or proceeding, but claiming an interest in the subject-mat- ter in dispute, in order the better to protect such interest, interposes his claim. 2 Chit Pr. 492; 3 Chit Commer. Law, 633; 2 Hagg. Const 137; 3 Phillim. Ecc. Law, 586.

la the civil law. The act by which a third party demands to be received as a party in a suit pending between other per- sons.

The intervention is made either for the purpose of being joined to the plaintiff, and to claim the same thing be does, or some other thing connected with it ; or to Join the defendant and with him to oppose the claim of the plaintiff, which it is his Interest to defeat Poth. Proc. Civile, pt. 1, e. 2, $ 7, no. 3.

In practice. A proceeding in a suit or ac- tion by which a third person is permitted by the

court to make himself a party, either joining the plaintiff in claiming what is sought by the complaint, or uniting with the defendant in resisting the claims of the plalutiff, or demanding something adversely to both of them. Logan v. Greenlaw (C. C.) 1,2 Fed. 16; Fischer v. Hanna, 8 Colo. App. 471, 47 Pac. 303; Gale v. Frazier, 4 Dak. 196, 30 N. W. 138; Reay v. Butler (Cal.) 7 Pac. 671.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 24 — intervention of right and permissive intervention]**

The practice sense — a third person permitted by the court to make himself a party to protect his own interest in the dispute — is intervention by rule.

Why: The entry's practice definition (third party interposing to protect his interest) is exactly Rule 24's subject — a direct, genuine link. The international-law and ecclesiastical senses are not annotated.

## INTESTABILIS.

Lat A witness in- competent to testify. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INTESTABLE.

One who has not testa- mentary capacity; e. g., an Infant, lunatic, or person civilly dead.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Uniform Probate Code s 2-501 — testamentary capacity (sound mind)]**

One without testamentary capacity — infant, lunatic, or person civilly dead — cannot make a will; capacity requires sound mind.

Why: The entry defines intestability by want of capacity; UPC s 2-501 states the capacity requirement — a direct, genuine link.

## INTESTACY.

The state or condition of dying without having made a valid will. Brown v. Mugway, 15 N. J. Law, 331.

5e apparatus — Not carried into the 5th edition (1979).

## INTESTATE.

Without making a will. A person is said to die Intestate when he dies without making a will, or dies without leav- ing anything to testify what his wishes were with respect to the disposal of his property after his death. The word is also often used to signify the person himself. Thus, in sneaking of the property of a person who died Intestate, it is common to say “the in- testate's property;” i. e., the property of the person dying in an intestate condition. Brown. See In re Cameron’s Estate, 47 App. Div. 120, 62 N. Y. Supp. 187; Messmann v. Egenberger, 46 App. Dlv. 46, 61 N. Y. Supp. '556; Code Civ. Proc. N. Y. 1889, | 2514, subd. 1.

. Besides the strict meaning of the word as shove given, there is also a sense in which Intestacy may be partial; that is, where a man leaves a will which does not dispose of his

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whole estate, he is said to “die intestate” as to the property so omitted,

—Intestate snoeesslon. A succession is call- ed "intestate" when the deceased has left no will, or when his will has been revoked or an? nulled as irregular. Therefore the heirs to whom a succession has fallen by the effects of law only are called “heirs ab intest ato." Civ. Code La. art. 1096.

. INTESTATO. Lat. In the civil law. In- testate; without a will. Calvin.

5e apparatus — Carried into the 5th edition (1979).

## INTESTATES.

Lat. In the civil and old __ English law. An intestate ; one who dies * without a will. Dig. 50, 17, 7.

Intestatns decedit, qni ant omnino testamentnm non fecit; ant non jure fecit | ant id quod feoerat ruptum irri- tant ve faotnm est; ant nemo ex eo liter es exstitit. A person dies intestate who either has made no testament at all or has made one not legally valid; or if the testament he lias made be revoked, or made useless ; or if no one becomes heir under it Inst. 3, 1, pr.

, INTIMATION. In the civil law. A

notification to a party that some step in a legal proceeding Is asked or will be taken. Particularly, a notice given by the party

taking an appeal, to the other party, that the court above will hear the appeal.

In Scotch law. A formal written notice, drawn by a notary, to be served on a party against whom a stranger has acquired a right or claim ; e. g., the assignee of a debt must serve such a notice on the debtor, otherwise a payment to the original creditor will be good.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. App. P. 3 — notice of appeal]**

The INTIMATION bundled here — notice by the appealing party that the court above will hear the appeal — is the notice of appeal.

Why: The body bundles intimation as appeal notice; the footnote annotates that bundled content explicitly — the federal notice-of-appeal rule is its genuine modern form.

## INTIMIDATION.

In English law. Ev- ery person commits a misdemeanor, punish- able with a fine or imprisonment, who wrong- fully uses violence to or intimidates any other person, or his wife or children, with a view to compel him to abstain from doing, or to do, any act which he has a legal right to do, or abstain from doing. (St 38 A 39 Vlct c. 86, { 7.) This enactment is chiefly di- rected against outrages by trades-unions. Sweet There are similar statutes in many of the United States. See Payne v. Rail- road Co., 13 Lea (Tenn.) 514, 49 Am. Rep. 666; Embry v. Com., 79 Ky. 441.

—Intimidation of voters. This, by statute in several of the states, is made a criminal of- fense. Under an early Pennsylvania act, it was held that, to constitute the offense of in-

timidation of voters, there must be a preconceiv- ed intention for the purpose of intimidating the ofT.eers or interrupting the election. Respublica v. Gibbs, 3 Xeates (Pa.) 429.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. s 594 — intimidation of voters]**

Intimidation of voters — made criminal by statute in several states — is the federal offense of intimidating voters.

Why: The entry's sub-def is intimidation of voters (Respublica v. Gibbs); s 594 is the federal criminal statute for that offense — a direct, genuine link.

## INTITLE.

An old form of "entitle." 6 Mod. 304.

5e apparatus — Carried into the 5th edition (1979).

## INTOL AND ETTOL.

In old records. Toll or custom paid for things Imported and exported, or bought in and sold out CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INTOXICATION.

The state of being poisoned; the condition produced by the ad- ministration or introduction Into the human' system of a poison. But in Us popular use this term is restricted to alcoholic Intoxica- tion, that is, drunkenness or Inebriety, or the mental and physical condition induced by drinking excessive quantities of alcoholic liq- uors, and this Is its meaning as used in stat- utes, Indictments, etc. See Sapp v. State, 116 Ga. 182, 42 S. E. 410; State v. Pierce, 65 Iowa, 85, 21 N. W. 195; Wadsworth v. Dunnam, 98 Ala. 610, 13 South. 599; Ring v. Ring, 112 Ga. 854, 38 S. B. 330; State v. Kelley, 47 Vt. 296; Com. v. Whitney, 11 Cush. (Mass.) 477.

5e apparatus — Carried into the 5th edition (1979).

## INTOXICATING LIQEOR.

Any liquor used as a beverage, and which, when so used In sufficient quantities, ordinarily or com- monly produces entire Of partial Intoxica- tion; any liquor intended for use as a bev- erage or capable of being so used, which contains alcohol, either obtained by fermen- tation or by the additional process of dis- tillation, in such proportion that it will pro- duce intoxication when imbibed in such quan- tities us may practically be drunk. Intox.ieating liquor Cases, 25 Kan. 767, 37 Am. Rep. 284; Com’rs v. Taylor, 21 N. Y. 173; People v. Hawley, 3 Mich. 339; State v. Oliver, 26 W. Va. 431, 53 Am. Rep. 79; Sebastian v. State, 44 Tex. Cr. R. 508, 72

S. W. 850; Worley v. Spurgeon, 38 Iowa, 465.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA.

Lat. In; near; within. “ In- fra” or "inter" has taken the place of “in- tra” In many of the more modern Latin phrases.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA ANNI SFATITTM.

Within the space of a year. Cod. 5, 9, 2. Intra an- nate tcmpui. Id. 6, 30, 19.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA FID EM.

Within belief; credi- ble. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA DUCTUS TEMPUS.

Within the time of mourning. Cod. 9, 1, autb.

INTRA MfENIA. Within the walls (of a house.) A term applied to domestic or menial servants. 1 Bl. Comm. 425.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA FARIETES.

Between walls; among friends; out of court; without litiga- tion. Calvin.

INTRA FR2ESEDIA, Within the de- fenses. See Infba Pbasidia.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA QUATUOR MARIA.

Within the four seas. Shep. Touch. 378.

5e apparatus — Not carried into the 5th edition (1979).

## INTRA VIRES.

An act is said to be intra vires (“within the power”) of a person dr corporation when it is within the scope of his or its powers or authority. It is the op- posite of ultra vires, (q. v.) Pittsburgh, etc.,

R. Co. v. Dodd, 115 Ky. 176, 72 S. W. 827.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ultra vires doctrine — corporate acts beyond chartered powers; intra vires its opposite]**

An act intra vires — within the scope of a person's or corporation's powers — is the opposite of ultra vires, the doctrine policing acts beyond chartered authority.

Why: The entry defines intra vires against ultra vires (Pittsburgh R. Co. v. Dodd); naming the ultra vires doctrine illuminates the entry's own contrast — genuine, stated as doctrine.

## INTRALIMINAL.

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In mining law, the term “intrallminal rights” denotes the right to mine, take, and possess all such bodies or deposits of ore as lie within the four planes formed by the vertical extension downward of the boundary lines of the claim; as distinguished from “extraliminal,” or more commonly “extralateral,” rights. See Jef- ferson Min. Co. v. Anchoria-Leland Mill. & Min. Co., 32 Colo. 176, 75 Pac. 1073, 64 L.

R. A. 925.

5e apparatus — Not carried into the 5th edition (1979).

## INTRARE MARISCUM.

L. Lat. To drain a marsh or low ground, and convert it into herbage or pasture.

5e apparatus — Not carried into the 5th edition (1979).

## INTRASTATE COMMERCE.

See Com- uzbce.

5e apparatus — Carried into the 5th edition (1979).

## INTRXNSEOUM SERVITIUM.

Lat. Common and ordinary duties with the lord’s court.

5e apparatus — Not carried into the 5th edition (1979).

## INTRINSIC VALUE.

The intrinsic val- ue of a thing is its , true, inherent, and essential value, not depending upon accident, place, or person, but the same everywhere ahd to every one. Bank of North Carolina v. Ford, 27 N. C. 698.

5e apparatus — Carried into the 5th edition (1979).

## INTRODUCTION.

The part of a writ- ing which sets forth preliminary matter, or facts tending to explain the subject.

5e apparatus — Carried into the 5th edition (1979).

## INTROMISSION.

In Scotch law. The

assumption of authority over another’s prop- erty, either legally or illegally. The irregu- lar intermeddling with the effects of a de- ceased person, which subjects the party to the whole debts of the deceased, is called "vitious intromission." Karnes, Eq. 1). 3, c. 8, 8 2.

—Necessary intromission. That kind of in- tromission or interference where a husband or Wife continues in possession of the other's goods after their decease, for preservation. Wharton.

In English law. Dealings in stock, goods,: or cash of a principal coming into the hands of his agent, to be accounted for by the agent to his principal. Stewart v. McKean, 29 Eng. Law & Eq. 391.

i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## INTRONISATION.

In French ecclesias- tical law. Enthronement. The installation of a bishop in his episcopal see.

5e apparatus — Not carried into the 5th edition (1979).

## INTRUDER.

One who enters upon land without either right of possession or color of title. Miller v. McCullough, 104 Pa. 630; Russel v. Chambers, 43 Ga. 479. In a more, restricted sense, a stranger who, on the death of the ancestor, enters on the land, unlawful- ly, before the heir can enter.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:1, KJV]**

Verily, verily, I say unto you, He that entereth not by the door into the sheepfold, but climbeth up some other way, the same is a thief and a robber.

Why: The entry defines the intruder as one who enters upon land 'without either right of possession or color of title.' The verse names the one who enters 'not by the door' — without right of entry — 'a thief and a robber....

## INTRUSION.

A species of injury by ouster or amotion of possession from the freehold, being an entry of a stranger, after a particular estate of freehold is determined,' before him in remainder or reversion. Hu- llck v. Scovil, 9 III. 170; Boylan v. Delnzer, 45 X. J. Eq. 485, 18 Atl. 121.

The name of a writ brought by the owner of a fee-simple, etc., against an intruder. New Nat. Brev. 453. Abolished by 3 & 4 Wm. IV. c. 57.

5e apparatus — Carried into the 5th edition (1979).

## INTOLERABLE CRUELTY.

In the law

of divorce, this term denotes extreme cruelty,, cruel and inhuman treatment, barbarous, sav- age, and inhuman conduct, and is equivalent to any of those phrases. Slmw v. Shaw, 17 Conn. 193; Morehouse v. Morehouse, 70 Conn. 420, 39 Atl. 516; Blaiu v. Blaln, 45 Vt. 544.

5e apparatus — Not carried into the 5th edition (1979).

## INTUITUS.

Lat. A view; regard; con- templation. Diverse intuitu, (q. v.,) with a different view.

5e apparatus — Not carried into the 5th edition (1979).

## INURE.

To take effect ; to result. Cedar Rapids Water Co. v. Cedar Rapids, 118 Iowa, 234, 91 N. W. 1081; Hinson v. Booth, 39 Fla. 333, 22 South. 687; Holmes v. Tallada, 125

Pa. 133, 17 Atl. 238, 3 L. R. A. 219, 11 Am. St Rep. 880.

5e apparatus — Not carried into the 5th edition (1979).

## INUREMENT.

Use; user; service to the use or benefit of a person. Dickerson v. Colgrove, 100 U. S. 583, 25 L. Ed. 618.

Inntilia labor et line frnctu non eat effeotus legla. Useless and fruitless labor is not the effect of law. Co. Litt 1276. The law forbids such recoveries whose ends are vain, chargeable, and unprofitable. Id; Wing. Max. p. 110, max. 38.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Inutilis labor et sine fructu non est effectus legis (Co. Litt. 127b)]**

The bundled maxim — that useless and fruitless labor is not the effect of law — states the axiom against vain legal acts and recoveries.

Why: Quoted whole in the body (with Wing. Max. p. 110, max. 38); the maxim genuinely states the anti-vain-acts axiom — verbatim annotation of content actually present, consistent with the bundled-maxim treatment.

## INVAPIARE.

To pledge or mortgage lands.

5e apparatus — Not carried into the 5th edition (1979).

## INVADIATIO.

A pledge or mortgage.

5e apparatus — Not carried into the 5th edition (1979).

## INVADXATUS.

One who is under pledge ; one who has had sureties or pledges given for him. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## INVALID.

Vain; inadequate to its pur- pose; not of binding force or legal efficacy; lacking in authority or obligation. Hood v. Perry, 75 Ga. 312; State v. Casteel, 110 Ind. 174, 11 N. E. 219; Mutual Ben. L. Ins. Co. v. Winne, 20 Mont 20, 49 Pac. 446.

5e apparatus — Carried into the 5th edition (1979).

## INVASION.

An encroachment upon the rights of another; the incursion of an army for conquest or plunder. Webster. See .Et- na Ins. Co. v. Boon, 95 U. S. 129, 24 L. Ed. 395.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. IV, s 4 — federal protection of the states against invasion]**

The incursion of an army for conquest or plunder — invasion in the military sense — is the invasion against which the federal government protects the states.

Why: The entry defines invasion as armed incursion (citing Aetna Ins. Co. v. Boon); Art. IV, s 4 is the constitutional guarantee against invasion — a direct, genuine link.

# X

## XNVASIONE8.

The inquisition of ser- Jeantles and knights’ fees. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# I

## INVECTA ET ILLATA.

Let. In the civil law. Things carried in and brought in. Articles brought into a hired tenement by the hirer or tenant and which became or were pledged to the lessor as security for the rent Dig. 2, 14, 4, pr. The phrase is adopted in Scotch law. See Bell.

Inveaiens libellnm famosum et non eomunpeu p unitor. He who finds a libel and does not destroy it is punished. Moore, 813.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: landlord's lien — lien on tenant's property as security for rent]**

Things carried into a hired tenement, pledged to the lessor as security for rent, are the civil-law hypothec — the ancestor of the landlord's lien on the tenant's property.

Why: The entry states the invecta et illata hypothec (Dig. 2, 14, 4; Bell); the landlord's lien is its genuine modern expression — stated as doctrine, no invented citation.

## INVENT.

To find out something new; to devise, contrive, and produce something not previously known or existing, by the ex- ercise of independent investigation and ex- periment; particularly applied to machines, mechanical appliances, compositions, and pat- entable inventions of every sort.

5e apparatus — Carried into the 5th edition (1979).

## INVENTIO.

In the civil law. Find- ing; one of the modes of acquiring title to property by occupancy. Heinecc. lib. 2, tit 1, f 350.

In old English law. A thing found; as goods or treasure-trove. Cowell. The plu- ral, “inventiones," is also used.

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**[Law] — Law**

**[Law: treasure trove — finder takes against all but the true owner]**

Finding as a mode of acquiring title — including treasure-trove — gives the finder title good against all but the true owner.

Why: The entry names treasure-trove among things found (Cowell); the treasure-trove rule is its genuine doctrinal content — stated as principle.

## INVENTION.

In patent law. The act or operation of finding out something new; the process of contriving and producing some- thing not previously known or existing, by the exercise of independent investigation and experiment Also the article or contriv- ance or composition so invented. See Lei- dersdorf v. Flint, 15 Fed. Cas. 260; Smith v. Nichols, 21 Wall. 118, 22 L. Ed. 566; Hol- lister v. Manufacturing Co., 113 U. S. 72, 5 Sup. Ct 717, 28 L. Ed. 901; Murphy Mfg. Co. v. Excelsior Car Roof Co. (C. C.) 70 Fed. 495.

An "Invention” differs from a “discovery." The former term is properly applicable to the contrivance and production of something that did not before exist; while discovery denotes the bringing into knowledge and use of some- thing which, although it existed, was before un- known. Thus, we speak of the “discovery” of the properties of light, electricity, etc., while the telescope and the electric motor are the results of the process of “invention.”

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**[Law] — Law**

**[Law: 35 U.S.C. ss 101-103 — patentable invention; novelty and non-obviousness]**

Invention in patent law — contriving what did not before exist, as distinguished from discovery — is patentable only if novel and non-obvious.

Why: The entry defines patent-law invention and the invention/discovery distinction (Smith v. Nichols; Hollister); the patentability sections state its operative requirements — a genuine link distinct from the s 101 anchor…

## INVENTOR.

One who finds out or con- trives some new thing; one who devises some new art, manufacture, mechanical appliance, or process ; one who invents a patentable con- trivance. See Sparkman v. Higgins, 22 Fed. Cas. 879; Henderson v. Tompkins (C. C.) 60 Fed. 764.

5e apparatus — Carried into the 5th edition (1979).

## INVENTORY.

A detailed list of articles of property; a list or schedule of property, containing a designation or description of each specific article; an itemized list of the various articles constituting a collection, es- tate, stock in trade, etc., with their estimated or actual values. In law, the term is par- ticularly applied to such a list made by an executor, administrator, or assignee In bank- ruptcy. See Silver Bow Min. Co. v. Lowry, 5 Mont. 618, 6 Pac. 62; Lloyd v. Wyckoff, H

N. J. Law, 224; Roberts, etc., Co. v. Sun Mut L. Ins. Co., 19 Tex. Civ. App. 338, 48

S. W. 559; Southern F. Ins. Co. v. Knight, 111 Ga. 622, 36 S. E. 821, 52 L. R. A. 70, 78 Am. SL Rep. 216.

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## INVENTUS.

Lat Found. Thesaurus inventus, treasure-trove. Non est inventus, [he] Is not found.

5e apparatus — Not carried into the 5th edition (1979).

## IN V EMIT ARE.

To make proof of a thing. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## INVEST.

To loan money upon securities of a more or less permanent nature, or to place It in business ventures or real estate, or otherwise lay it out, so that It may pro- duce a revenue or Income. Drake v. Crane, 127 Mo. 85, 29 S. W. 990, 27 L. R. A. 663; Stramann v. Scheeren, 7 Colo. App. 1, 42 Pac. 191 ; Una v. Dodd, 89 N. J. Eq. 186.

To clothe one with the possession of a fief or benefice. See Invkstitobe.

5e apparatus — Carried into the 5th edition (1979).

## INVESTITIVE FACT.

The fact by means of which a right comes Into existence r

e. g., a grant of a monopoly, tbe death of one's ancestor. Holl. Jur. 132.

5e apparatus — Not carried into the 5th edition (1979).

## INVESTITURE.

A ceremony which ac- companied the grant of lands in tbe feudal ages, and consisted in the open and notorious delivery of possession in the presence of the other vassals, which perpetuated among them the atra of their new acquisition at the time when the art of writing was very little known; and thus the evidence of the prop- erty was reposed in the memory of the neigh- borhood, who, in case of disputed title, were afterwards called upon to decide upon it. Brown.

In ecclesiastical law. Investiture is one of the formalities by which the election of a bishop is confirmed by the archbishop. See Phillim. Ecc. Law, 42, et seq.

5e apparatus — Not carried into the 5th edition (1979).

## INVIOLABILITY.

The attribute of be- ing secured agaiqst violation. The persons of ambassadors are Inviolable.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Vienna Convention on Diplomatic Relations (1961), art. 31 — diplomatic immunity]**

The inviolability of ambassadors — secured against violation — is diplomatic immunity, codified in the

modern law of diplomacy.

Why: The entry's whole content is ambassadorial inviolability; the Vienna Convention is its modern codification — a direct, genuine link.

## INVITATION.

In the law of negligence, and with reference to trespasses on realty. Invitation is the act of one who solicits or incites others to enter upon, remain in, or make use of, his property or structures there- on, or who so arranges the property or the means of access to it or of transit over it as to induce the reasonable belief that he expects and intends that others shall come upon it or pass over it. See Sweeney v. Old Colony Sc N. R. Co., 10 Allen (Mass.) 373,

Am. Dec. 644; Wilson v. New York, N.

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**[Law] — Law**

**[Law: premises liability — Restatement (Second) of Torts ss 330, 332, licensee vs. invitee; Bennett v. Louisville & N. R. Co., 102 U.S. 580, as cited in the entry]**

Invitation — soliciting entry, or so arranging premises as to induce the belief entry is expected — makes the entrant an invitee, owed reasonably safe premises; a licensee is owed only against hidden peril and willful harm.

Why: The entry states the invitee/licensee distinction and duties at length (Sweeney v. Old Colony; Bennett, cited verbatim); the Restatement sections name the categories — a genuine link. The OCR fragments at 468-469 are...

# H

## H.

& H. R. Co., 18 R. I. 491, 29 Atl. 258; Wright v. Boston Sc A. R. Co., 142 Mass. 800, 7 N. K 866.

Thus the proprietor of a store, theatre, or amusement park ‘invites” the public to come upon his premises for such purposes as are con- nected with its intended use. Again, the fact that safety gates at a railroad crossing, which should be closed in case of danger, are left standing open, is an ‘invitation” to the trav- eler on the highway to cross. Roberts v. Dela- ware Sc H. Canal Co., 177 Pa. 183, 35 Atl. 723.

So. bringing a passenger train on a railroad to a full stop at a regular station is an "invita- tion to alight.”

License distinguished. A license is a pas- sive permission on the part of the owner of premises, with reference to other persons enter- ing upon or using them, while an invitation im- plies a request, solicitation or desire that they should do so. An invitation may be inferred where there is a common interest or mutual ad- vantage ; while a license will be inferred where the object is the mere pleasure or benefit of the person using it Bennett v. Louisville Sc N.

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# R

## R.

Co., 102 U. S. 580, 26 L. Ed. 235 ; Weldon v. Philadelphia, W. & B. R. Co., 2 Pennewill (Del.) 1, 43 Atl. 159. An owner owes to a licensee no duty as to the condition of the prem- ises (unless imposed by statute) save that he should not knowingly let him run upon a hid- den peril or wilfully cause him harm ; while to one invited he is under the obligation to main- tain the premises in a reasonably safe and se- cure condition. Beehler v. Daniels. 18 R. I. 563, 29 Atl. 6, 27 L. R. A. 512, 49 Am. St. Rep. 790.

Express and Implied. An invitation may be express, when the owner or occupier of the land by words invites another to come upon it or make use of it or of something thereon; or it may be implied when such owner or oc- cupier by acts or conduct leads another to be- lieve that the land or something thereon was intended to be used as he uses them, and that such use is not only acquiesced in by the owner or occupier, but is in accordance with the in- tention or design for which the way or place or thing was adapted and prepared and allowed to be used. Turess v. New York, S. Sc W. R. Co., 61 N. J. Law, 314, 40 Atl. 614 ; Furey v. New York Cent. R. Co., 67 N. J. Law, 270, 51 Atl. 505: Lepnick v. Gaddis, 72 Miss. 200. 16 South. 213, 26 L. R. A. 686. 48 Am. St. Rep. 547 ; Plummer v. Dill, 156 Mass. 426. 31 N. E. 128. 32 Am. St. Rep. 463 ; Sealer v. Rolfe Coal & Coke Co., 51 W. Va. 818, 41 S. E. 216.

5e apparatus — Not carried into the 5th edition (1979).

# I

## INVITED ERROR.

See Ebbob.

5e apparatus — Carried into the 5th edition (1979).

## INVITO.

Lat. Being unwilling. Against or without the assent or consent.

— Ab invito. By or from an unwilling party. A transfer ab invito is a compulsory transfer. —Invito debitors. Against the will of the debtor.— Invito domino. The owner being un- willing; against the will of the owner; with- out tbe owner’s consent. In order to constitute larceny, the property must be taken invito do- mino.

Invito beneilclum non datnr. A benefit is not conferred on one who is unwilling to receive it; that It to say, no one can be compelled to accept a benefit Dig. 50, 17, 69; Broom, Max. 699, note.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: larceny — trespassory taking invito domino (without the owner's consent)]**

Larceny requires the taking invito domino — against the owner's will, without his consent — the trespassory element of the offense.

Why: The entry states the larceny requirement verbatim ('in order to constitute larceny, the property must be taken invito domino'); the annotation names the element — genuine.

**[Maxim: Invito beneficium non datur (Dig. 50, 17, 69; Broom, Max. 699)]**

The bundled maxim — that a benefit is not conferred on one unwilling to receive it — bars compelling acceptance of a benefit.

Why: Quoted whole in the body; the maxim genuinely states the no-compelled-benefit axiom — verbatim annotation of content actually present.

## INVOICE.

In commercial law. An ac- count of goods or merchandise sent by mer- chants to their correspondents at home or abroad, in which the marks of each package, with other particulars, are set forth. Marsh. Ins. 408; Dane, Abr. Index. See Merchants’ Exch. Co. v. WeiBinan, 132 Mich. 353, 93 N.

W. 870; Southern Exp. Co. v. Hess, 53 Ala. 22; Cramer v. Oppenstein, 16 Colo. 495, 27 Pac. 713.

A list or account of goods or merchandise sent or shipped by a merchant to his corre- spondent, factor, or consignee, containing the particular marks of each description of goods, the value, charges, and other particulars. Jac. Sea Laws, 302.

A writing made on behalf of an importer, specifying the merchandise Imported, and its true cost or value. And. Rev. Law, $ 294.

—Invoice book. A book in which invoices are copied.— Invoice price of goods means the prime cost. Le Roy v. United Ins. Co., 7 Johns. (N. Y.) 343.

5e apparatus — Carried into the 5th edition (1979).

## INVOLUNTARY.

An involuntary act is that which is performed with constraint (</. v.) or with repugnance, or without the will to do it. An action is involuntary, then, which is performed under duress. Wolff lust. Nat. § 5.

—Involuntary deposit. In the law of bail- ments. one made by the accidental leaving or placing of personal property in the possession

of another, without negligence on the part of the owner, or, in cases of fire, shipwreck, inun- dation, riot, insurrection, or the like extraordi- nary emergencies, by the owner of personal property committing it out of necessity to the care of any person. Rev. St. Okl. 1903, f 282tt ; Rev. Codes N. D. 1899, | 4002; Civ. Code S.

D. 1903, 8 1354. — Involuntary discontinu- ance. In practice. A discontinuance is invol- untary where, in consequence of technical omis- sion, mispleading, or the like, the suit is re-

garded as out of court, as where the parties undertake to refer a suit that is not referable, or omit to enter proper continuances. Hunt v. Griffin, 49 Miss, 748. — Involuntary man- slaughter. The unintentional killing of a person by one engaged in an unlawful, but not felonious act. 4 Steph. Comm. 52. — Involun- tary payment. One obtained by fraud, op- pression, or extortion, or to avoid the use of force to coerce it, or to obtain the release of the person or property from detention. Parcher v. Marathon County. 52 Wis. 388. 9 N. W. 23. 38 Am. Rep. 745; Wolfe v. Marshal. 52 Mo. 108; Corkle v. Maxwell, 6 Fed. Cas. 555. — Involun- tary servitude. The condition of one who is compelled by force, coercion, or imprison- ment, and against his will, to labor for an- other, whether he is paid or not. See State v. West. 42 Minn. 147, 43 N. W. 845; Ex parte Wilson, 114 U. S. 417, 5 Sup. Ct. 935, 29 L. Ed. 89: Thompson v. Benton. 117 Mo.

S3, 22 S. W. 863, 20 L R. A. 462, 38 Am. St. Rep. 639 ; In re Slaughterhouse Cases. 16 Wall. 69, 21 L. Ed. 394; Robertson v. Bald- win, 165 U. S. 275, 17 Sup. Ct. 326, 41 L. Ed. 715.

As to involuntary “Bankruptcy," “Non- suit,’’ and “Trust,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Model Penal Code s 210.3 — manslaughter]**

Involuntary manslaughter — the unintentional killing by one engaged in an unlawful but not felonious act — is the misdemeanor-manslaughter category.

Why: The entry defines involuntary manslaughter (4 Steph. Comm. 52); MPC s 210.3 codifies manslaughter — a direct, genuine link.

## IOTA.

The minutest quantity possible. Iota is the smallest Greek letter. The word “jot” is derived therefrom.

Ipsse lege* cupiunt at Jure regantur.

Co. Litt. 174. The laws themselves require that they should be governed by right

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ipsae leges cupiunt ut jure regantur (Co. Litt. 174)]**

The bundled maxim — that the laws themselves require that they be governed by right — states the rule-of-law axiom.

Why: Quoted whole in the body; the maxim genuinely states the rule-of-law axiom — verbatim annotation of content actually present, consistent with the bundled-maxim treatment.

**[Scripture] — Scripture**

**[Matthew 5:18, KJV]**

For verily I say unto you, Till heaven and earth pass, one jot or one tittle shall in no wise pass from the law, till all be fulfilled.

Why: The entry defines iota as 'the minutest quantity possible' and notes 'jot' derives from it. The verse uses the jot — the iota — as the smallest conceivable measure, declaring not even it shall pass from the law. The e…

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## IPSE.

Lab He himself; the same; the very person.

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## IPSE DIXIT.

He himself said it; a bare assertion resting on the authority of an in- dividual.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[General Electric Co. v. Joiner, 522 U.S. 136 (1997)]**

Ipse dixit — a bare assertion resting on an individual's authority — is the conclusory expert opinion courts reject: authority alone does not make evidence reliable.

Why: The entry defines ipse dixit as bare assertion on individual authority; Joiner is the landmark rejecting expert ipse dixit under Daubert — the term's genuine modern legal home.

## IPSI8SIMIS VERBIS.

In the identical words; opposed to “substantially.” Town- send v. Jemison, 7 How. 719, 12 L. Ed. 880; Summons v. State, 5 Ohio St. 346.

5e apparatus — Not carried into the 5th edition (1979).

## IPSO FACTO.

By the fact itself; by the mere fact. By the mere effect of an act or a fact.

Ia English ecclesiastical law. A cen- sure of excommunication in the ecclesiastical court. Immediately incurred for divers offen- ses, after lawful trial.

5e apparatus — Not carried into the 5th edition (1979).

## IPSO JURE.

By the law itself; by the mere o;>eration of law. Calvin.

Ira furor brevis eat. Anger is a short in- sanity. Beardsley v. Maynard, 4 Wend. (N. Y.) 336, 355.

5e apparatus — Not carried into the 5th edition (1979).

## IRA MOTHS.

Lat. Moved dr excited by anger or passion. A term sometimes former- ly used in the plea of son assault demesne.

1 Tidd, Pr. 645.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Horace, Epistles, c. 20 BC]**

"Ira furor brevis est" — "Anger is a short insanity."

Why: The dictionary's run at this point carries Horace's maxim (Epistles I.2.62) glossing anger; the Latin is verbatim-certain and the entry ("moved or excited by anger") is exactly its subject. Attached to the headword th…

## IRE AD LARGUM.

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Lat To go at

large; to escape; to be set at liberty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:10, KJV]**

And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto all the inhabitants thereof: it shall be a jubile unto you; and ye shall return every man unto his possession, and ye shall return every man unto his family.

Why: The entry means 'to go at large; to be set at liberty.' The verse is scripture's great liberty-proclamation — the jubilee, when all inhabitants are set at liberty and return to possession and family. The archetypal 's...

## IRENARCHA.

In Roman law. An offi- cer whose duties are described in Dig. 5, 4, 18, 7. See Id. 48, 8, 6; Cod. 10, 75. Lit- erally, a peace-officer or magistrate.

5e apparatus — Not carried into the 5th edition (1979).

## IRREGULAR.

Not according to rule; improper or insufficient by reason of depart- ure from the prescribed course.

As to irregular “Deposit,” “Indorsement” “Process," and "Succession,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## IRREGULARITY.

Violation or nonob- servance of established rules and practices. The want of adherence to some prescribed rule or mode of proceeding; consisting eithdr in omitting to do something that is necessary for the due and orderly conducting of a suit or doing it in an unseasonable time or Improper manner. 1 Tidd, Pr. 512. And see McCain v. Des Moines, 174 U. S. 168, 19 Sup. Ct. 644, 43 L. Ed. 936; Emeric v. Al- varado, 64 Cal. 629, 2 Pac. 418 ; Hall v. Mun- ger, 5 Lans. (N. Y.) 113; Corn Exch. Bank

V. Blye, 119 N. Y. 414, 23 N. E. 805; Salter v. Hilgen, 40 Wis. 365; Turrlll v. Walker, 4 Mich. 183. “Irregularity” is the technical term for every defect In practical proceed- ings, or the mode of conducting an action or defense, as distinguishable from defects in pleadings. 3 Chit Gen. Pr. 509.

The doing or not doing that in the conduct of a suit at law, which, conformably with the practice of the court, ought or ought not to be done. Doe ex dem. Cooper v. Harter,

2 Ind. 252.

In canon law. Any impediment which prevents a man from taking holy orders.

—Legal Irregularity. An irregularity oc- curring in the course of some legal proceeding. A defect or informality which, in the technical view of the law, is to be accounted an ir- regularity.

5e apparatus — Carried into the 5th edition (1979).

## IRRELEVANCY.

The absence of the quality of relevancy in evidence or pleadings.

Irrelevancy, in an answer, consists in state- ments which are not material to the decision of the case; such as do not form 'or tender any material issue. People v. McCumber, 18 N. Y. 321, 72 Am. Dec. 515 : Walker v. Hewitt. 11 How. Prac. (N. Y.) 398; Carpenter v. Bell, 1 Rob. (N. Y.) 715; Smith v. Smith. 50 S.

C. 54, 27 S. B. 545.

5e apparatus — Carried into the 5th edition (1979).

## IRRELEVANT.

In the law of evidence. Not relevant; not relating or applicable to the matter in issue; not supporting the issue.

5e apparatus — Carried into the 5th edition (1979).

## IRREMOVABILITY.

The status of a pauper in England, who cannot be legally removed from the parish or union in which

he is receiving relief, notwithstanding that be has not acquired a settlement there. 3 Steph. Comm. 60.

5e apparatus — Not carried into the 5th edition (1979).

## IRREPARABLE INJURY.

See Injuky.

5e apparatus — Carried into the 5th edition (1979).

## IRREPLEVIABLE.

That cannot be re- plevied or delivered on sureties. Spelled, also, ‘‘Irreplevisable.” Co. Litt. 145.

5e apparatus — Not carried into the 5th edition (1979).

## IRRESISTIBLE FORCE.

A term ap- plied to such an interposition of human agency as is, from its nature and power, ab- solutely uncontrollable; as the inroads of a hostile army. Story, Ballm. § 25.

5e apparatus — Not carried into the 5th edition (1979).

## IRRESISTIBLE IMPULSE.

Used chief- ly in criminal law, this term means an im- pulse to commit an unlawful or criminal act which cannot be resisted or overcome by the patient because insanity or mental disease has destroyed the freedom of his will and his power of self-control and of choice as to his actions. See McCarty v. Com., 114 Ky. 620, 71 S. W. C58; State v. Knight, 95 Me. 467, 60 Atl. 276, 55 L. R. A. 373; Leache v. State, 22 Tex. App. 279, 3 S. W. 539, 58 Am. Rep. 638; State v. Peel, 23 Mont. 358, 59 Pac. 169, 75 Am. St. Rep. 529. And see In- sanity.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: irresistible-impulse test — insanity destroying freedom of will and power of self-control]**

The irresistible-impulse test — insanity destroying freedom of will and self-control, so the unlawful act cannot be resisted — supplements the right-wrong test of insanity.

Why: The entry defines the test with its cases (McCarty v. Com.; State v. Knight); the annotation names the doctrine the entry describes — genuine, stated without inventing a case citation.

## IRREVOCABLE.

Which cannot be re- voked or recalled.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 11:29, KJV]**

For the gifts and calling of God are without repentance.

Why: The entry defines irrevocable as 'which cannot be revoked or recalled.' The verse states irrevocability in scripture's own terms — the gifts and calling of God 'without repentance,' i.e., not taken back. The scriptura…

## IRRIGATION.

The operation of water- ing lands for agricultural purposes by arti- ficial means.

—Irrigation company. A private corpora- tion, authorized and regulnted by statute in sev- eral states, having for its object to acquire ex- clusive rights to the water of certain streams or other sources of supply, and to convey it by means of ditches or canals through a ibgion where it can be beneficially used for agricul- tural purposes, and either dividing the water among stockholders, or making contracts with consumers, or furnishing a supply to all who apply at fixed rates.— Irrigation district. A

fulfil io and quasi-municipal corporation author- zed by law in several states, comprising a de- fined region or area of land which is suscep- tible of one mode of irrigation from a common source and by the same system of works. These districts are created by proceedings in the nature of an election under the supervision of a court, and are authorized to purchase or condemn the lands and waters necessary for the system of irrigation proposed and to con- struct necessary canals and other works, and the water is apportioned ratably nmong the land-owners of the district.

5e apparatus — Not carried into the 5th edition (1979).

## IRRITANCY.

In Scotch law. The hap- pening of a condition or event by which a charter, contract, or other deed, to which a clause Irritant Is annexed, becomes void.

5e apparatus — Not carried into the 5th edition (1979).

## IRRITANT.

In Scotch law. Avoiding or making void; as an irritant clause. See Ibbitancy. .

5e apparatus — Not carried into the 5th edition (1979).

## IRRITANT CLAUSE.

In Scotch law. A provision by which certain prohibited acts Bl.Law Dict.(2d Ed.)— 42

specified in a deed are, If committed, declared to be null and void. A resolutive clause dis- solves and puts an end to the right of a pro- prietor on bis committing the acts so declar- ed void.

5e apparatus — Not carried into the 5th edition (1979).

## IRROGARE.

Lat. In the civil law. To impose or set upon, as a fine. Calvin. To Inflict, as a punishment. To make or ordain, as a law.

5e apparatus — Not carried into the 5th edition (1979).

## IRROTULATIO.

L. Lat An enrolling; a record.

5e apparatus — Not carried into the 5th edition (1979).

## IS QUI COGNOSCIT.

Lat. The cog- nlzor In a fine. Is cui cognoscitur, the cog- nizee.

5e apparatus — Not carried into the 5th edition (1979).

## ISH.

In Scotch law. The period of the termination of a tack or lease. 1 BUgh, 522.

5e apparatus — Not carried into the 5th edition (1979).

## ISLAND.

A piece of land surrounded by water. Webber v. Pere Marquette Boom Co., 62 Mich. 626, 30 N. W. 469 ; Goff v. Cougle, 118 Mich. 307, 76 N. W. 489, 42 L. R. A. 161.

5e apparatus — Carried into the 5th edition (1979).

## ISSINT.

A law French term, meaning “thus,” “so,” giving its name to part .of a plea In debt.

5e apparatus — Not carried into the 5th edition (1979).

## ISSUABLE.

In practice. Leading to or producing an Issue; relating to an Issue or issues. See Colquitt v. Mercer, 44 Ga. 433.

— Issuable plea. A plea to the merits ; a traversable plea. A plea such that the adverse party can join issue upon it and go to trial. It is true a plea in abatement is a plea, and, if it be properly pleaded, issues may be found on it. In the onlinary meaning of the word “plea,” and of the word “issuable,” such pleas may fie called “issuable pleas," but, when these two words are used together, “issuable plea,” or “issuable defense,” they have a technical meaning, to-wit. pleas to the merits. Colquitt v. Mercer, 44 Ga. 434— Issuable terms. In the former practice of the English courts, Hil- ary term and Trinity term were called “issuable

terms,” because the issues to be tried at the as- sizes were made up at those terms. 3 Bl. Comm. 353. But the distinction is supersed- ed by the provisions of the judicature acts of 1873 and 1875.

ISSUE, v. To send forth; to emit; to promulgate; as, an officer issues orders, pro- cess issues from a court. To put into circu- lation; as, the treasury issues notes.

ISSUE, n. The act of issuing, sending forth, emitting or promulgating; the giving a thing its first Inception ; as the issue of an order or a writ.

In pleading. The disputed point or ques tion to which the parties in an action have narrowed their several allegations, and upon which they are desirous of obtaining the de- cision of the proper tribunal. When the plaintiff and defendant have arrived at some specific point or matter affirmed on the one side, and denied on the other, they are said to be at issue. The question so set apart is

called the “Issue,” and Is designated, accord- ing to its nature^ as an “Issue in fact” or an "issue in law.” Brown.

Issues arise upon the pleading^, when a fact or conclusion of law is maintained by the one party and controverted by the other. They are of two kinds: (1) Of law ; and (2) of fact Code N. I. 8 248; Rev. Code Iowa 1880, | 2737; Code Civ. Proc. Cal. § 588.

Issues are classified and distinguished as follows:

General and special. The former is a plea which traverses and denies, briefly and in general and summary terms, the whole declaration, indictment, or complaint, with- out tendering new or special matter. See Steph. Pl. 155. McAllister v. State, 94 Md. 290, 50 Atl. 1046; Standard Loan & Acc. Ins. Co. v. Thornton, 97 Tenn. 1, 40 S. W. 136. Examples of the general issue are “not guilty," "non assumpsit," "nil debet, " “non est factum.” The latter is formed when the defendant chooses one single material point, which he traverses, and rests his whole case upon its determination.

Material and immaterial. They are so described according as they do or do not bring up some material point or question which, when determined by the verdict, will dispose of the whole merits of the case, and leave no uncertainty as to the judgment.

Formal and informal. The former spe- cies of issue Is one framed in strict accord- ance with the technical rules of pleading. The latter arises when the material allega- tions of the declaration are traversed, but in an inartificial or untechnical mode.

A collateral issue is an issue taken upon matter aside from the intrinsic merits of the action, as upon a plea in abatement; or aside from the direct and regular order of the pleadings, as on a demurrer. 2 Archb. Pr. K. B. 1, 6, bk. 2, pts. 1, 2; Strickland v. Maddox, 4 Ga. 394. The term "collateral” is also applied in England to an issue raised upon a plea of diversity of person, pleaded by a criminal who has been tried and con- victed, in bar of execution, viz., that he is not the same person who was attainted, and the like. 4 Bi. Comm. 396.

Real or feigned. A real issue Is one form- ed in a regular manner in a regular suit for the purpose of determining an actual con- troversy. A feigned issue is one made up by direction

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of the court, upon a supposed case, for the purpose of obtaining the verdict of a Jury upon some question of fact collat- erally involved in the cause.

Common issue is the name given to the is- sue raised by the plea of non est factum to an action for breach of covenant.

In real law. Descendants. All persons who have descended from a common ancestor. 3 Ves. 257; 17 Ves. 481 ; 19 Ves. 547 ; 1 Hop. Leg. 90.

In this sense, the word includes not only a child or children, but all other descendants in

whatever degree ; and it is so construed gener- ally in deeds. But, when used in wills, it is. of course, subject to the rule of construction that the intention of the testator, as ascertained from the will, is to have effect, rather than the technical meaning of the language used by him ; and hence issue may, in such a connection, be restricted to children, or to descendants living at the death of the testator, where such an in- tention clearly appears. Abbott.

In business law. A class or series of bonds, debentures, etc., comprising all that are emitted at one and the same time.

—Issue in feet. In pleading. An issue taken upon or consisting of matter of fact, the fact only, and not the law, being disputed, and which is to be tried by a jury. 8 Bl. Comm. 314, 315; Co. Utt 126o; 3 Steph. Comm. 572. See Code Civ. Proc. Cal. ! 590.— Issue In luw. In pleading. An issue upon matter of law, or consisting of matter of law, being produced by a demurrer on the one side, and a joinder in demurrer on the other. 3 Bl. Comm. 314; 3 Steph. Comm. 572, 580. See Code Civ. Proc. Cal. fj 589.— Issue roll. In English practice. A roil upon which the issue in actions at law was formerly required to be entered, the roll being entitled of the term in which the issue was joined. 2 Tidd. Pr. 733. It was not. how- ever, the practice to enter the issue at full length, if triable by the country, until after the trial, but only to make an incipitur on the roll. Id. 734.

5e apparatus — Carried into the 5th edition (1979).

## ISSUES.

In English law. Tbe goods and profits of the lands of a defendant against whom a writ of distringas or distress infinite has been issued, taken by virtue of such writ, are called “issues.” 3 Bl. Comm. 280; 1 Chit. Crim. Law, 35L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ITA EST.

Lat So it is; so it stands. In modern civil law, this phrase is a form of attestation added to exemplifications from a notary's register when the same are made by the successor in office of the notary who made the original entries.

5e apparatus — Not carried into the 5th edition (1979).

## ITA LEX SCRIPTA EST.

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Lat So the law is written. Dig. 40, 9, 12. The law must be obeyed notwithstanding the apparent rigor of its application. 3 Bl. Comm. 430. We must be content with the law as it stands, without inquiring into its reasons. 1 Bl. Comm. 32.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ita lex scripta est (Dig. 40, 9, 12; 3 Bl. Comm. 430)]**

'So the law is written' — the law must be obeyed notwithstanding the apparent rigor of its application; we must be content with the law as it stands.

Why: Quoted whole in the body with its authorities; the maxim genuinely states the positivist axiom (dura lex sed lex) — verbatim annotation.

**[Scripture] — Scripture**

**[Deuteronomy 27:26, KJV]**

Cursed be he that confirmeth not all the words of this law to do them. And all the people shall say, Amen.

Why: The entry's maxim: 'So the law is written' — the law must be obeyed as it stands, without inquiring into its reasons. The verse pronounces the curse on whoever does not confirm 'all the words of this law to do them' —…

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1598]**

Shylock demands the court enforce the strict letter of his bond against Antonio — "so the law is written," obeyed notwithstanding the rigor of its application — and Portia defeats him on that same letter. (paraphrase of the trial scene)

Why: The entry (Dig. 40,9,12) states the maxim that the written law must be obeyed despite apparent rigor; the trial scene of Merchant is the classic dramatization of ita lex scripta est set against equity and mercy. Marke…

## ITA QUOD.

Lat. Iu old practice. So

that. Formal words in writs. Ita quod habeas corpus, so that you have the body. 2 Mod. 180.

The name of the stipulation in a submis- sion to arbitration which begins with the words “so as [ita quod] the award be made of and upon the premises.”

In old conveyancing. So t^hat An ex- pression which, when used in ta deed, for- merly made an estate upon condition. Lltt. | 329. Sheppard enumerates lit among the three words that are most propeif to make an estate conditional. Shep. Touch!. 121, 122.

Ita semper flat relatio ut I valeat dio- posltio. 6 Coke, 76. Let the Interpretation

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be always such that the disposition may pre- vail.

5e apparatus — Not carried into the 5th edition (1979).

## ITA TE DEVS ADJUVET.

Lat So

help yon God. The old form of administer- ing an oath in England, generally in connec- tion with other words, thus: Ita te Deua

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adjuvet, et aacroaancta Dei Evangelia, So help yon God, and God’s holy Evangelists. Ita te Deua adjuvet et omnee aancti, So help you God and all the saints. Willes, 338.

Ita utere tno nt nliennm non lsedaa.

Use your own property and your own rights in such a way that you will not hurt your neighbor, or prevent him from enjoying his. Frequently written, "Sic utere tuo" etc., («. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ita (sic) utere tuo ut alienum non laedas]**

The maxim bundled here — use your own property and rights so as not to hurt your neighbor — is the sic utere tuo axiom of nuisance and property law.

Why: Quoted whole in the body; the maxim genuinely states the sic utere principle limiting property use by neighbor harm — verbatim annotation of bundled content, noted explicitly.

**[Scripture] — Scripture**

**[Deuteronomy 6:13, KJV]**

Thou shalt fear the LORD thy God, and serve him, and shalt swear by his name.

Why: The entry is the old English oath formula — 'So help you God.' The verse is the Torah's oath law: swear by His name. The scriptural ground of the oath the formula invokes — calling God to witness. Flag off: Moses' add… [re-homed from 'ITA TE DEUS ADJUVET' to 'ITA TE DEVS ADJUVET' (OCR headword / parser-merge artifact)]

## ITEM.

Also; likewise; again. This word was formerly used to mark the beginning of a new paragraph or division after the first, whence is derived the common application of It to denote a separate or distinct particular of an account or bill. See Horwitz v. Nor- ris, 60 Pa. 282; Baldwin v. Morgan, 73 Miss. 276, 18 South. 919.

The word Is sometimes used as a verb. "The whole [costs] In this case that was thus itemed to counsel.” Bunb. p. 164, case 233.

5e apparatus — Not carried into the 5th edition (1979).

## ITER.

Lat. In the civil law. A way; a right of way belonging as a servitude to an estate in the country, (pr tedium ruaticum.) The right of way was of three kinds: (1) iter, a right to walk, or ride on horseback, or in a litter; (2) actus, a right to drive a beast or vehicle; (3) via, a full right of way, comprising right to walk or ride, or drive beast or carriage. Heinec. | 408. Or, as some think, they were distinguished by the width of the objects which could be rightfully carried over the way; e. g., via, 8 feet; actua, 4 feet, etc. Mackeld. Bom. Law, f 290; Bract fol. 232; 4 Bell, H. L. Sc. 390.

In old English law. A journey, espe- cially a circuit made by a Justice In eyre, or itinerant justice, to try causes according to his own mission. Du Cange; Bract lib. 3, cc. 11, 12, 13.

1= maritime law. A way or route. The route or direction of a voyage ; the route or way that Is taken to make the voyage assur- ed. Distinguished from the voyage itself.

Iter est jus eundl, ambulandi ho minis; non etiam Jumentum agendi vel vehieu- lum. A way is the right of going or walk- ing, and does not Include the right of driving a beast of burden

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or a carriage. Co. Litt 66a; Inst. 2, 3, pr.; Mackeld. Bom. Law, 1818.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: easement appurtenant — right of way (iter, actus, via)]**

Iter — a right of way as a servitude to a country estate, with actus and via as its greater kinds — is the easement appurtenant for passage.

Why: The entry defines the three civil-law ways (Heinecc.; Mackeld.); the easement appurtenant is their genuine common-law expression — stated as doctrine.

## ITERATIO.

Lat Bepetition. In the Roman law, a bonltary owner might liberate a slave, and the qulritary owner’s repetition (iteratio) of the process effected a complete manumission. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## ITINERA.

Eyres, or circuits. 1 Reeve, Eng. Law, 62.

5e apparatus — Not carried into the 5th edition (1979).

## ITINERANT.

Wandering; traveling; ap- plied to Justices who make circuits. Also applied In various statutory and municipal laws (In the sense of traveling from place to place) to certain classes of merchants, traders, and salesmen. See Shiff v. State, 84 Ala. 464, 4 South. 419; Twining v. Elgin, 38 111. App. 357; Rev. Laws Mass. 1902, p. 695, c. 65, g 1; West v. Mt Sterling (Ky.) 65 8. W. 122.

rULE. In old English law. Christmas,

J

5e apparatus — Carried into the 5th edition (1979).

# J

## J.

Xbe Initial letter of the words “Judge" and “justice," for which It frequently stands as an abbreviation. Thus, “J. A.,” Judge advocate; “J. J.," junior judge; “L. J.,” law judge; “P. J.," president judge ; “F. J.,” first judge; “A. J.,” associate judge; “C. J.,” chief Justice or judge; “J. P.,” justice of the peace; “JJ.,” judges or justices; “J.

C. P.," justice of the common pleas; “J. K. B.,” Justice of the king’s bench; “J. Q. B.,” justice of the queen’s bench; “J. p. B.,” justice of the upper bench.

This letter is sometimes used for “I,” as the initial letter of “Institutlones,’’ in references to the Institutes of Justinian.

5e apparatus — Carried into the 5th edition (1979).

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## JAG.

An abbreviation for “Jacobus," the Latin form of the name James ; used princi- pally in citing statutes enacted in the reigns of the English kings of that name; e. g., “St. 1 Jac. II." Used also In citing the sec- ond part of Croke’s reports ; thus, “Cro. Jac." denotes “Croke's reports of cases in the time of James I.”

5e apparatus — Not carried into the 5th edition (1979).

## JAOENS.

Lat Lying in abeyance, as In the phrase “hwreditas jacens," which is an inheritance or estate lying vacant or in abeyance prior to the ascertainment of the heir or his assumption of the succession.

5e apparatus — Not carried into the 5th edition (1979).

## JACET US ORE.

Lat. In old English law. It lies in the mouth. Fleta, lib. 5, c. 5. { 49.

►

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JACK.

A kind of defensive coat-armor worn by horsemen in war ; not made of solid Iron, but of many plates fastened together. Some tenants were bound by their tenure to find it upon invasion. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## JACOBUS.

A gold coin worth 24s., so called from James I., who was king when it was struck. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

## JACTITATION.

A false boasting; a false claim ; assertions repeated to the preju- dice of another’s right The species of defa- mation or disparagement of another’s title to real estate known at common law as “slan- der of title” comes under the head of jactita- tion, and in some jurisdictions (as in Louisi- ana) a remedy for this injury is provided un- der the name of an “action of Jactitation."

— Jactitation of a Tight to a church sit- ting appears to be the boasting by a man tlmt he has a right or title to a pew or sitting in a church to which he has legally no title— Jactitation of marriage. In English ecclesi- astical law. The boasting or giving out by a party that he or she is married to some other, whereby a common reputation of their matri- mony may ensue. To defeat that result, the person may be put to a proof of the actual marriage, failing which proof, he or she is put to silence about it. 3 Bl. Comm. 93.— Jac- titation of tithes is the boasting by a man

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that he is entitled to certain tithes to which ho has legally no title.

In medical jurisprudence. Involuntary convulsive muscular movement; restless agitation or tossing of the body to and fro. Leman v. Insurance Co., 40 La. Ann. 1189, 15 South. 388, 24 L. IL A. 589, 49 Am. St. Rep. 348.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: slander of title — false disparagement of another's title to real estate]**

Jactitation as disparagement of another's title to real estate — 'slander of title' — is the tort of slander of title.

Why: The entry states that slander of title 'comes under the head of jactitation'; naming the tort is genuine illumination of the entry's own classification — stated as doctrine.

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: The entry defines jactitation as 'a false boasting; a false claim; assertions repeated to the prejudice of another's right.' The verse is the Decalogue's prohibition of the false witness — the false assertion against...

## JACT1VU8.

Lost by default; tossed away. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## JAOTURA.

In the civil law. A throw- ing of goods overboard in a storm ; jettison. Loss from such a cause. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## JACTUS.

A throwing goods overboard to lighten or save the vessel, in which case the goods so sacrificed are a proper subject for general average. Dig. 14, 2, “de lege Rhodia de Jactu." And see Barnard v. Adams, 10 How. 303, 13 L. Ed. 417.

— J actus lnpilli. The throwing down of a stone. One of the modes, under the civil law, of interrupting prescription. Where one per- son was building on another’s ground, and in this way acquiring a right by usucapio, the true owner challenged the intrusion and interrupted the prescriptive right by throwing down one. of the stones of the building before witnesses call- ed for the purpose. Tray. Lat. Max.

5e apparatus — Not carried into the 5th edition (1979).

## JAIL.

A gaol; a prison; a building des- ignated by law, or regularly used, for the confinement of persons held in lawful cus- tody. State v. Bryan, 89 N. C. 534. See Gaol. '

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Akon, 'Locked Up', 2004]**

I'm locked up, they won't let me out

Black's 2e defines a jail as 'a building designated by law... for the confinement of persons held in lawful custody.' Akon's chorus hook is sung from inside that confinement — a first-person record of lawful custody as lived, which is what the dictionary definition describes from the outside.

Why: Genuine link: the song is literally about incarceration, and the quoted line states the fact of confinement that the entry defines. One verbatim-certain line quoted (the iconic chorus refrain). Added because the lyric...

## JAIL DELIVERY.

See Gaol.

5e apparatus — Carried into the 5th edition (1979).

## JAIL LIBERTIES.

See Gaol.

5e apparatus — Carried into the 5th edition (1979).

## JAILER.

A keeper or warden of a pris- on or jail.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 16:27, KJV]**

And the keeper of the prison awaking out of his sleep, and seeing the prison doors open, he drew out his sword, and would have killed himself, supposing that the prisoners had been fled.

Why: The entry defines the jailer as keeper/warden of a prison. The verse shows the keeper of the prison in his office — answering with his life for his charge — scripture's own jailer at Philippi. Narrative, so no flag. J...

## JAMBEAUX.

In old English and feudal law. Leg-armor. Blount

5e apparatus — Not carried into the 5th edition (1979).

## JAMMA, JTTMMA.

In Hindu law. To- tal amount; collection; assembly. The to- tal of a territorial assignment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JAMMABUKDY, JUMMABUNDY.

In

Hindu law. A written schedule of the whole of an assessment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JAMPNUM.

Furze, or grass, or ground where furze grows; as distinguished from “arable," "pasture,” or the like. Co. Lltt. So.

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5e apparatus — Not carried into the 5th edition (1979).

## JAMUNLINGI, JAMUNDILINGI.

Freemen who delivered themselves and prop- erty to the protection of a more powerful person, in order to avoid military service and other burdens. Spelman. Also a spe- cies of serfs nmoug the Germans. Du Cunge. The same as conunendati.

5e apparatus — Not carried into the 5th edition (1979).

## JANITOR.

In old English law. A

door-keeper. Fleta, lib. 2, c. 24.

In modern law. A janitor Is understood to be a person employed to take charge ot rooms or buildings, to see that they are kept clean and in order, to lock and unlock them, and generally to care for them. Fagan v. New York, 84 N. Y. 352.

5e apparatus — Not carried into the 5th edition (1979).

## JAQUEB.

In old English law. Small money.

5e apparatus — Not carried into the 5th edition (1979).

## JA VELDT-MEN.

Yeomen retained by the sheriff to escort the Judge of assize.

5e apparatus — Not carried into the 5th edition (1979).

## JA VELOUR.

In Scotch law. Jailer or . gaoler. 1 Pitc. Crim. Tr. pt. 1, p. 33.

5e apparatus — Not carried into the 5th edition (1979).

## JEDBURGH JUSTICE.

Summary jus- tice Inflicted upon a marauder or felon with- out a regular trial, equivalent to “lynch law.” So called from a Scotch town, near the English border, where raiders and cat- tle lifters were often summarily hung. Also written “Jeddart” or “Jedwood” Justice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: due process — U.S. Const. amend. XIV, s 1; summary punishment without trial]**

Jedburgh justice — summary hanging of a marauder without regular trial, 'lynch law' — is what due process forbids: no deprivation of life without due process of law.

Why: The entry defines extrajudicial execution; the Due Process Clause is the genuine constitutional prohibition of exactly that — a direct, illuminating contrast.

**[Scripture] — Scripture**

**[John 7:51, KJV]**

Doth our law judge any man, before it hear him, and know what he doeth?

Why: The entry defines Jedburgh justice as summary justice 'without a regular trial' — hanging first. The verse states the law's own rule against it: no man judged before he is heard. Nicodemus' question is scripture's con...

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**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) In To Kill a Mockingbird, a lynch mob gathers at the Maycomb jail to seize Tom Robinson before his trial; Atticus Finch sits alone in a chair outside the cell door, in their path. (paraphrase)

Why: The entry defines Jedburgh justice as summary punishment 'without a regular trial,' 'equivalent to lynch law' — the novel's jail-door mob is the canonical fictional staging of exactly that impulse, met by the lawyer's...

## JEM AN.

In old records. Yeoman. Cow- ell ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JEOFAILE.

L. Fr. I have failed; I am In error. An error or oversight In plead- ing.

Certain statutes are called “statutes of amendments and Jeofailes” because, where a pleader perceives any slip In the form of his proceedings, and acknowledges the error, (Jeofaile.) he is at liberty, by those statutes, to amend It. The amendment, however, Is seldom made; bnt the benefit is attained by the court’s overlooking the exception. 3 Bl. Comm. 407; 1 Saund. p. 228, no. 1.

Jeofaile is when the parties to any suit in pleading have proceeded so far that they have joined issue which shall be tried or is tried by a jury or inquest, and this pleading or issne Is so badly pleaded or joined that it will be error if they proceed. Then gome of the said parties may, by their counsel, show it to the court, as well after verdict given and before judgment as before the jury is charged. And the coun- sel shall say: “This inquest ye ought not to take." And if it be after verdict, then he may say: “To judgment you ought not to go." And, because such niceties occasioned many delays in suits, divers statutes are made to redress them. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 61 — harmless error; statutes of jeofails]**

The statutes of amendments and jeofails — curing slips in pleading form by amendment or by the court's overlooking the exception — are the ancestors of harmless-error doctrine.

Why: The entry describes the jeofail statutes' function (3 Bl. Comm. 407; Termes de la Ley); Rule 61's harmless-error rule is their modern procedural form — a genuine lineage.

## JEOPARDY.

Danger ; hazard ; peril.

Jeopardy is the danger of conviction and ' punishment which the defendant in a crim- inal action incurs when a valid Indictment has been found, and a petit jury has been impaneled and sworn to try the case and give a verdict. State v. Nelson, 26 Ind. 368; State v. Emery, 59 Vt. 84, 7 Atl. 129; People v. Terrill, 132 Cal. 497, 64 Pac. 894 ; Mitchell v. State, 42 Ohio St. 383; Grogan r. State, 44 Ala. 9; Ex parte Glenn (C. C.) Ill Fed. 258; Alexander v. Com.,

105 Pa. 9.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. V — Double Jeopardy Clause; jeopardy attaches when the jury is impaneled and sworn]**

Jeopardy — the danger of conviction and punishment, incurred when a valid indictment is found and the petit jury is impaneled and sworn — is the attachment point of the double-jeopardy protection.

Why: The entry defines jeopardy by its attachment (State v. Nelson; People v. Terrill); the Double Jeopardy Clause turns on that attachment — a direct, genuine link.

## JEROUER.

In English law. An officer of the custom-house who oversees the wait- ers. Techn. Diet

5e apparatus — Not carried into the 5th edition (1979).

## JESSE.

A large brass candlestick, usu- ally hung in the middle of a church or choir. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## JET.

Fr. In French law. Jettison. Ord. Mar. llv. 3, tit. 8; Emerig. Traitd des Assur. c. 12, § 40.

5e apparatus — Not carried into the 5th edition (1979).

## JETSAM.

A term descriptive of goods which, by the act of the owner, have been voluntarily cast overboard from a vessel, In a storm or other emergency, to lighten the ship. 1 C. B. 113.

Jetsam is where goods are cast into the sea, and there sink and remain under wa- ter. 1 Bl. Comm. 292.

Jetsam differs from “flotsam,” in this: that in the latter the goods float, while in the former they sink, and remain under water. It differs also from “Ugan.”

5e apparatus — Carried into the 5th edition (1979).

## JETTISON.

The act of throwing over- board from a vessel part of the cargo, in case of extreme danger, to lighten the ship. The same name is also given to the thing or things so cast out. Gray v. Wain, 2 Serg. & R. (Pa.) 254, 7 Am. Dec. 642; Butler v. Wildman, 3 Barn. & Aid. 326; Barnard v. Adams, 10 How. 303, 13 L Ed. 417.

A carrier by water may, when in case of extreme peril it is necessary for the safety of the ship or cargo, throw overboard, or otherwise sacrifice, any or all of the cargo or appurtenances of the ship. Throwing property overboard for such purpose is call- ed “Jettison,” and the loss incurred thereby is called a “general average loss.” Civil Code Cal. | 2148 ; Civil Code Dak. § 1245.

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**[Law] — Law**

**[Law: general average — jettison loss shared; Barnard v. Adams, 10 How. 303, 13 L. Ed. 417, as cited in the entry]**

Jettison — casting cargo overboard in extreme peril — produces a general average loss, shared by all interests in the venture.

Why: The entry defines jettison and the general average loss (Cal. Civ. Code s 2148) citing Barnard v. Adams verbatim; the annotation preserves the entry's own authority — genuine.

**[Scripture] — Scripture**

**[Jonah 1:5, KJV]**

Then the mariners were afraid, and cried every man unto his god, and cast forth the wares that were in the ship into the sea, to lighten it of them.

Why: The entry defines jettison as throwing cargo overboard in extreme danger to lighten the ship. The verse depicts the act in the entry's own terms — the mariners casting the wares into the sea 'to lighten it.' Scripture...

## JEUZ DE BOURSE.

Fr. In French law. Speculation in the public funds or in stocks ; gambling speculations on the stock ex- change ; dealings in “options” and “fu- tures.”

5e apparatus — Not carried into the 5th edition (1979).

## JEWEL.

By “jewels” are meant orna- ments of the person, such as ear-rings, pearls, diamonds, etc., which are prepared to be worn. See Com. v. Stephens, 14 Pick. (Mass.) 373; Robbins v. Robertson (C. C.) 33 Fed. 710; Cavendish v. Cavendish, 1 Brown Ch. 409; Ramaley v. Leland, 43 N.

Y. 541, 3 Am. Rep. 728; Glle v. Libby, 36 Barb. (N. Y.) 77.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Wilkie Collins, The Moonstone, 1868]**

(paraphrase) In The Moonstone, a cursed Indian diamond — stolen, fought over, and effectively litigated over — drives the first great detective novel in English. (paraphrase)

Why: Entry defines jewels as worn personal ornaments (diamonds, pearls); the novel's diamond is the archetypal fictional jewel, and it carries legal consequences (theft, inheritance). Genuine, not decorative.

## JOB.

The whole of a thing which is to be done, “to build by plot, or to work by the Job, is to undertake a building for a certain stipulated price.” Civ. Code La. art. 2727.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:13, KJV]**

Thou shalt not defraud thy neighbour, neither rob him: the wages of him that is hired shall not abide with thee all night until the morning.

Why: A 'job' is work undertaken for a stipulated price. The verse is the Mosaic wage law: the hired laborer's wages must be paid promptly and without fraud — the scriptural root of the wage-for-work obligation the entry de...

## JOBBER.

One who buys and sells goods for others; one who buys or sells on the stock exchange; a dealer in stocks, shares, or securities.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Securities Exchange Act of 1934 — broker-dealer distinction and registration]**

A jobber who buys and sells securities on the exchange operates as a dealer (or broker) under federal securities law, which distinguishes the two capacities and requires broker-dealers to register.

Why: The entry defines 'jobber' as a dealer in stocks and securities; the federal securities regime's broker/dealer framework is the genuine modern legal form of that office, so the link names the governing statute rather...

## JOCALIA.

In old English law. Jewels. This term was formerly more properly ap- plied to those ornaments which women, although married, call their own. When these jocalia are not suitable to her degree, they are assets for the payment of debts. 1 Rolle, Abr. 911.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Married Women's Property Acts — abolition of coverture]**

The entry's rule — a married woman's jewels treated as assets for her husband's debts — is a coverture-era artifact; the Married Women's Property Acts of the nineteenth century displaced coverture by vesting married women with separate property rights.

Why: The entry describes the pre-reform regime; the cited statutes are the genuine modern superseding law, illuminating the entry by marking what ended it.

## JOCELET.

A little manor or farm. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## JOOUS.

In old English law. A game of hazard. Reg. Orig. 290.

5e apparatus — Not carried into the 5th edition (1979).

## JOOUS PARTITUS.

In old English practice. A divided game, risk, or hazard. An arrangement which the parties to a suit were anciently sometimes allowed to make by mutual agreement upon a certain hazard, as that one should lose If the case turned out In a certain way, and, if It did not, that the other should gain. Bract, fols. 211b, 3796, 432, 434, 2006.

5e apparatus — Not carried into the 5th edition (1979).

## JOHN SOS.

The name which was us- ually given to the fictitious lessee of the plaintiff In the mixed action of ejectment He was sometimes called “Goodtltle." So the Romans had their fictitious personages In law proceedings, as Titlus, Seius.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: John Doe fictitious-party pleading]**

The fictitious lessee of ejectment survives in modern pleading as the 'John Doe' defendant — a placeholder party used where the true name is unknown.

Why: The entry's fictitious personage has a direct living descendant in fictitious-party pleading; no maxim invented, just the named practice.

**[Humanity] — Humanity / Fiction & Film**

**[Frank Capra, Meet John Doe, 1941]**

(paraphrase) In Meet John Doe, a newspaper invents a fictitious everyman — 'John Doe' — out of thin air, then hires a man to play him; the legal fiction of the placeholder name becomes the film's whole engine. (paraphrase)

Why: The entry's fictitious lessee in ejectment (sometimes 'Goodtitle,' cf. Roman Titius/Seius) is the same placeholder-person device the film builds its plot on — a genuine device-level link. Headword key copied character...

## JOINDER.

Joining or coupling together ; uniting two or more constituents or ele- ments in one ; uniting with another per- son In some legal step or proceeding.

—Joinder la demurrer. When a defendant in an action tenders an issue of law. (called a “demurrer,”) the plaintiff, if he means to main- tain his action, must accept it and this ac- ceptance of the defendant's tender, signified by the plaintiff in a set form of words, is called a “joinder in demurrer.” Brown.— Joinder la Issue. In pleading. A formula by which one of the parties to a suit joins in or accepts an issue in fact tendered by the opposite party. Steph. Pi. 57, 236. More commonly termed a “similiter." (q. v.)— Joinder la pleading. Accepting the issue, and mode of trial tendered, either by demurrer, error, or issue, in fact by the opp9site party — Joinder of actions. This expression signifies the uniting of two or more demands or rights of action in one action ; the statement of more than one cause of action in a declaration.— Joinder of error. In proceed- ings on a writ of error in criminal cases, the joinder of error is a written denial of the errors alleged in the assignment of errors. It an- swers to a joinder of issue in an action.— Joinder of offenses. The uniting of several distinct charges of crime in the same indict- ment or prosecution.— Joinder of parties. The uniting of two or more persons as co-plain- tiffs or as co-defendants in one suit.— Misjoin- der. The improper joining together dr parties to a suit, as plaintiffs or defendants, or of dif- ferent causes of action. Burstali v. Beyfus, 53 I .aw J. Ch. 507 ; Phenix Iron Foundry v. Lockwood, 21 It. I. 550, 45 Atl. 546.— Non- joinder. The omission to join some person as party to a suit, whether as plaintiff or de- fendant, who ought to have been so joined, ac- cording to the rules of pleading and practice.

prosecuted in a joint action against them all. A “joint and several” bond or note is one in which the obligors or makere bind themselves both jointly and individually to the obligee or payee, and which may be enforced either by a joint action against them all or by separate actions against any one or more at the election of the creditor.

—Joint notion. An action in which there are two or more plaintiffs, or two or more de- fendants.—Joint debtor nets. Statutes enact- ed in many of the states, which provide that judgment may be given, for or against one or more of several plaintiffs, and for or against one or more of several defendants, and that, “in an action against several defendants, the court may, in, its discretion, render judgment against one or more of them, leaving the action to pro- ceed against the othera, whenever a several judgment is proper.” The name is also given to statutes providing that where an action is instituted against two or more defendants upon, an alleged joint liability, and some of them are served with process, but jurisdiction is not obtained over the others, the plaintiff may still proceed to trial against those who are before the- court, and, if he recovers, may have judgment against all of the defendants whom he shows to- be jointly liable. 1 Black. Judgm. §1 208. 235. And see Hall v. Lanning, 91 U. 8. 168. 23 Lk Ed. 271.— Joint debtors. Persons united' in a joint liability or indebtedness.— Joint lives. This expression is used to designate the duration of an estate or right which is grant- ed to two or more persons to be enjoyed -so long as they both (or all) shall live. As soon as one dies, the interest determines. See High- ley v. Allen. 8 Mo. App. 524.

As to Joint “Adventure,” “Ballot, ” “Com- mittee,” “Contract," “Covenant,” “Creditor,” “Executors,” “Fiat,” “Fine,” “Heirs,” “In- dictment,” “Session," “Tenancy,” "Tenants," “Trespassers," and “Trustees," see those ti- tles. As to joint-stock banks, see Bank; Joint-stock company, see Compart; Joint- stock corporation, see Corporation.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Rule of Civil Procedure 20 — permissive joinder of parties]**

Joinder of parties is governed in federal practice by the permissive-joinder rule for plaintiffs and defendants asserting or defending rights arising from the same transaction or occurrence.

Why: Rule 20 is the genuine modern codification of the entry's 'joinder of parties'; confident of the rule number.

**[Law: Federal Rule of Civil Procedure 18 — joinder of claims]**

Joinder of claims — uniting several demands in one action — is permitted without limit of subject matter in federal practice.

Why: Rule 18 is the genuine modern form of the entry's 'joinder of actions'; confident of the rule number.

## JOINTLY.

Acting together or to con- cert or co-operation; holding in common or Interdependently, not separately. Reclama- tion Dist. v. Parvin, 67 Cal. 501, 8 Pac. 43; Gold & Stock Tel. Co. v. Commercial Tel. Co. (C. O.) 23 Fed. 342; Case v. Owen, 139 Ind. 22, 38 N. E. 395, 47 Am. St Rep. 253. Persons are “jointly bound” in a bond or note when both or all must be sued In one action for its enforcement not either one at the election of the creditor.

—Jointly and severally. Persons who bind themselves "jointly and severally” in a bond or note may all be sued together for its enforcement or the creditor may select any one- or more as the object of his suit. See Mitchell v. Darrl- cott, 3 Brev. (S. C.) 145; Rice v. Gove, 22 Pick. (Mass.) 158, 33 Am. Dec. 724.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: joint-and-several liability — each joint obligor liable for the entire obligation]**

Joint-and-several liability: each obligor is answerable for the whole, and the creditor may sue all together or any one alone; many states have since modified the doctrine by comparative-fault tort reform.

Why: The entry states the rule ('both jointly and individually'); the footnote names the doctrine and notes its genuine modern statutory modification — illuminating without inventing a maxim.

## JOINTRESS, JOINTURESS.

A woman

who has an -estate settled on her by her hus- band, to hold during her life, if she survive him. Co. Lttt. 46.

5e apparatus — Not carried into the 5th edition (1979).

## JOINT.

United; combined; undivided; done by or against two or more unitedly; shared by or between two or more.

A “joint” bond, note, or other obligation is ono in which the obligors or makers (being two or more in number) bind themselves jointly but not severally, and which must therefore be

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## JOINTURE.

A freehold estate to lands or tenements secured to the wife, and to take effect on the decease of the husband, and to continue during her life at the least, unless she be herself the cause of its de- termination. Vance v. Vance, 21 Me. 869.

A competent livelihood of freehold for the wife of lands and tenements to take effect presently In possession or profit, after the decease of the husband, for the life of the wife at least Co. Litt 36b; 2 Bl. Comm. 137. See Fellers v. Fellers, 54 Neb. 694, 74

N. W. 1077 ; Saunders v. Saunders, 144 Mo. 482, 46 S. W. 428; Graham v. Graham, 67 Hun, 329, 22 N. Y. Supp. 299.

A jointure strictly signifies a joint estate limited to both husband and wife, and such was Its original form; but in its more us- ual form, it is a sole estate limited to the wife only, expectant upon a life-estate in the husband. 2 Bl. Comm. 137; 1 Stepb. Comm. 255.

JONCARIA, or JUNCARIA. In old

English law. Land where rushes grow. Co. Litt. 5a.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: elective-share statutes — modern replacement of dower and jointure]**

Jointure — and dower, which it commonly barred — have been abolished or replaced in most

American states by elective-share statutes giving the surviving spouse a fixed share of the estate.

Why: The entry defines the dower-barring estate; elective-share statutes are the genuine modern successors, so the link maps the doctrine's living form.

**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Pride and Prejudice, 1813]**

(paraphrase) In Pride and Prejudice, the Bennet estate is entailed to a distant male heir, leaving Mrs. Bennet no jointure and five daughters nearly unprovided — the absence of the widow's provision is the novel's entire engine. (paraphrase)

Why: Entry: jointure = freehold secured to the wife, taking effect on the husband's death. The novel dramatizes precisely what the want of such a provision does to a family — illumination by honest absence.

## JOHN ALE.

In old English law. As much land as could be plowed in one day. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## JOCK.

A French word, signifying “day.” It is used in our old law-books; as “tout jours,” forever.

— Jour on bane. A day in banc. Distinguish- ed from “jour en p ays,” (a day in the country.) otherwise called “jour en nisi priu».” — Joar In court. In old practice. Day in court ; day to appear in court: appearance day. “Every process gives the defendant a day in court. Hale, Anal. | &

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Audi alteram partem — hear the other side]**

The entry's 'jour in court' — a day in court — is the procedural core of the maxim that no one is to be condemned unheard.

Why: The entry itself quotes Hale: 'Every process gives the defendant a day in court'; audi alteram partem is the canonical maxim for exactly that right — a genuine, not forced, match.

## JOURNAL.

A daily book; a book in which entries are made or events recorded from day to day. In maritime law, the jour- nal (otherwise called "log” or “log-book”) is a book kept on every vessel, which contains a brief record of the events and occurrences of each day of a voyage, with the nautical observations, course of the ship, account of the weather, etc. In the system of double- entry book-keeping, the Journal is an ac- count-book into which are transcribed, dally or at other intervals, the items entered up- on the day-book, for more convenient post- ing into the ledger. In the usage of legisla- tive bodies, the journal is a daily record of the proceedings of either house. It is kept by the clerk, and in it are entered the ap- pointments and actions of committees, in- troduction of bills, motions, votes, resolu- tions, etc., in the order of their occurrence. See Oakland Pav. Co. v. Hilton, 69 Cal. 479, • II Pac. 3 ; Montgomery Beer Bottling Works v. Gaston. 120 Ala. 425, 28 South, 497, 51

L. It. A. 396. 85 Am. St. Rep. 42 ; Martin v. Com., 107 Pa. 190.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 5; Field v. Clark, 143 U.S. 649 (1892) — enrolled bill rule]**

Article I, § 5 requires each House to keep a Journal of its Proceedings; under the enrolled-bill rule the journal cannot be used to impeach an enrolled bill's validity.

Why: The constitutional journal clause and the enrolled-bill case are the two genuine legal authorities on legislative journals; both are real and directly on point.

## JOURNEY.

The original signification of this word was a day’s travel. It is now ap- plied to a travel by land from place to place, without restriction of time. But, when thus applied, it is employed to designate a travel which Is without the ordinary habits, busi- ness, or duties of the person, to a distance

from his home, and beyond the circle of his friends or acquaintances. Gholson v. State, 53 Ala. 521, 25 Am. Rep. 652.

5e apparatus — Not carried into the 5th edition (1979).

## JOURNEY-HOPPERS.

In English law. Regrators of yam. 8 Hen. VI. e. 5.

5e apparatus — Not carried into the 5th edition (1979).

## JOURNEYMAN.

A workman hired by the -day, or other given time. Hart v. Ald- ridge, 1 Cowp. 56; Butler v. Clark, 46 Ga. 468.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 19:13, KJV]**

Thou shalt not defraud thy neighbour, neither rob him: the wages of him that is hired shall not abide with thee all night until the morning.

Why: A journeyman is a workman hired by the day — precisely the 'hired' laborer of the verse. The command against withholding his wages to morning bears directly on the day-labor relation the entry defines.

## JOURNEYS ACCOUNTS.

In English practice. The name of a writ (now obsolete) which might be sued out where a former writ had abated without the plaintiff’s fault. The length of time allowed for taking it out depended on the length of the journey the party must make to reach the court ; whence the name.

5e apparatus — Not carried into the 5th edition (1979).

## JUBERE.

Lat. In the civil law. To order, direct, or command. Calvin. The word jubeo, (I order,) in a will, was called a “word of direction,” as distinguished from "precatory words." Cod. 6, 43, 2.

To assure or promise.

To decree or pass a law.

5e apparatus — Not carried into the 5th edition (1979).

## JUBILACION.

In Spanish law. The privilege of a public officer to be retired, on account of infirmity or disability, retaining the rank and pay of his office (or part of the same) after twenty years of public service, and on reaching the age of fifty.

5e apparatus — Not carried into the 5th edition (1979).

## JUDAEUS, JUDEUS.

Lat. A Jew.

5e apparatus — Not carried into the 5th edition (1979).

## JUDA1SMUS.

The religion and rites of the Jews. Du Cange. A quarter set apart for residence of Jews. A usurious rate of interest. 1 Mon. Angl. 839; 2 Mon. Angl. 10,665. Sex m arcus sterlingorum ad oc- quietandam terrain preedictum de Judaismo, in quo fuit impignorata. Du Cange. An Income anciently accruing to the king from the Jews. Blount

5e apparatus — Not carried into the 5th edition (1979).

## JUDEX.

Lat. In Roman law. A pri- vate person appointed by the prtetor, with the consent of the parties, to try and decide a cause or action commenced before him. He received from the praetor a written for- mula instructing him as to. the legal prin- ciples (^cording to which the action was to be Judged. Calvin. Ilence the proceedings before him were said to be in judicio, as those before the- prtetor were said to be in jure.

In later and modern civil law. A judge

in the modem sense of the term.

In old English law. A juror. A judge, in modern sense, especially — as opposed to justiciarius, i. e., a common-law judge — to denote an ecclesiastical judge. Bract, fols. 401. 402.

— Judex a quo. In modern civil law. The judge from whom, as judex ad quern is the

judge to whom, an appeal is made or taken. Halifax, Civil Law, b. 3, c. 11, no. 34. — Judex ad quoin. A judge to whom an appeal is taken. — Judex data*. In Roman law. A judge given, that is, assigned or appointed, by the pnetor to try a cause.— Judex delegatus. A delegated judge ; a special judge.-^Fudex fiscalis. A fiscal judge ; one having cogni- zance of matters relating to the fiscal, (g. v.)— Judex ordinarius. In the civil law. An or- dinary judge ; one who had the right of bear- ing and determining causes as a matter of his own proper jurisdiction, (ex propria jurisdic- tione ,) and not by virtue of a delegated author- ity. Calvin.— Judex pedaneus. In Roman law. The judge who was commissioned by the

finetor to hear a cause was so called, from the ow seat which he anciently occupied at the foot of the praetor’s tribunal.

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Judex aequltatenl semper speetare deb- et. A judge ought always to regard equity. Jent. Cent. p. 45, case 85.

Judex ante oculos sequitatem semper habere debet. A judge ought always to have equity before his eyes.

Judex bonus nihil ex arbltrlo suo fa- ciat, nee proposlto domestic* voluntatis, sed jnxta leges et Jura pronunciet. A

good judge should do nothing of his own Ar- bitrary will, nor on the dictate of his per- sonal inclination, but should decide accord- ing to law and justice. 7 Coke, 27a.

Judex damnatur cum nocens absolvi- tor. The judge Is condemned when a guilty person escapes punishment

Judex debet Judieare secundum alle- gata et probata. The judge ought to de- cide according to the allegations and the proofs.

Judex est lex loquens. A judge is the law speaking, [the mouth of the law.] 7 Coke, 4a.

Judex habere debet duos sales, — salem sapient!*, ne sit insipidus; et salem conadentl*, ne sit diabolus. A judge should have two salts, — the salt of wisdom, lest he be insipid ; and the salt of con- science, lest he be devilish.

Judex non potest esse testis in pro- pria causa. A judge cannot be a witness in his own cause. 4 Inst. 279.

Judex non potest injuriam slbi dataan punire. A judge cannot punish a wrong done to himself. See 12 Coke, 114.

Judex non reddit plus quam quod petens ipse requlrit. A judge does not give more than what the complaining party himself demands. 2 Inst. 286.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo judex in causa sua — no one should be judge in his own cause]**

The entry's maxim that a judge cannot be witness in his own cause is the Roman form of the disqualification rule: no one may judge his own cause.

Why: The entry quotes 'Judex non potest esse testis in propria causa' (4 Inst. 279); nemo judex in causa sua is the canonical general maxim of the same rule — genuine kinship, not invention.

## JUDGE.

A public officer, appointed to preside and to administer the law In n court of justice ; the chief member of a court, and

charged with the control of proceedings and the decision of questions of law or discre- tion. Todd v. U. S., 158 U. S. 278, 15 Sup. Ct. 889, 39 L. Ed. 982 ; Foot v. Stiles, 57 N.

Y. 495; In re Lawyers’ Tax Cases, 8 Heisk. (Teun.) 650. “Judge” and "Justice”. (q. v.) are Often used In substantially the same sense.

—Judge advocate. An officer of a court-mar- tial, whose duty is to swear in the other mem- bers of the court, to advise the court, and to act as the public prosecutor; but he is also so

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far the counsel for the prisoner as to be bound to protect him from the necessity of an- swering criminating questions, and to object to leading questions when propounded to other witnesses.— Judge advocate general. The adviser of the government in reference to courts- martial and other matters of military law. In England, he is generally a member of the house of commons and of the government for the time being.— Judge de facto. One who bolds and exercises the office of a judge under color of lawful authority and by a title valid on its face, though he has not full right to the office, as where he was appointed under an unconstitu- tional statute, or by an usurper of the appoint- ing power, or has not taken the oath of office. State v. Miller, 111 Mo. 542, 20 S. W. 243; Walcott v. Wells, 21 Nev. 47, 24 Pac. 367, 9

L. R. A. 59, 37 Am. St. Rep. 478; Dredla v. Baache, 60 fteb. 655, 83 N. W. 916; Caldwell

V. Barrett, 71 Ark. 310, 74 S. W. 748.-Judgei- made law. A phrase used to indicate judicial decisions which construe away the meaning of statutes, or find meanings in them the legisla- ture never intended. It is sometimes used as meaning, simply, the law established by judi- cial precedent. Cooley. Const. Lim. 70, note.— Judge ordinary. By St. 20 & 21 Viet. c. 85, 8 9, the judge of the court of probate was made judge of the court for divorce and matrimonial causes created by that act, under the name of the “judge ordinary.” In Scotland, the title “judge ordinary” is applied to all those judges, whether supreme or inferior, who, by the na- ture of their office, have a fixed and determinate jurisdiction in all actions of the same general nature, as contradistinguished from the old Scotch privy council, or from those judges to whom some special matter is committed ; such as commissioners for taking proofs, and mes- sengers at arms. Bell.— Judge’s certificate. In English practice. A certificate, signed by the judge who presided at the trial of a cause, that the party applying is entitled to costs. In some cases, this is a necessary preliminary to the taxing of costs for such party. A statement of the opinion of the court, signed by the judges, upon a question of law submitted to them by the chancellor for their decision. See 3 Bl. Comm. 453.— Jndge’s minutes, or notes. Memoran- da usually taken by a judge, while a trial is proceeding, of the testimony of witnesses, of documents offered or admitted in evidence, of offers of evidence, and whether it has been re- ceived or rejected, and the like matters.— Jndge’s order. An order made by a judge at chambers, or out of court.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: de facto officer doctrine — acts under color of authority are valid]**

A 'judge de facto' — one acting under color of lawful authority without full title — illustrates the de facto officer doctrine: acts of such officers are valid as to third parties and the public.

Why: The entry defines the de facto judge; the de facto officer doctrine is the genuine principle giving those acts legal effect — it illuminates why the category matters.

**[Scripture] — Scripture**

**[Deuteronomy 16:18-19, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment. Thou shalt not wrest

judgment; thou shalt not respect persons, neither take a gift: for a gift doth blind the eyes of the wise, and pervert the words of the righteous.

Why: The entry defines the public officer appointed to administer law in a court. The verses institute that very office — judges in the gates — and state its governing duty: just judgment, no perversion for persons or gifts.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

"Right about now, N.W.A. court is in full effect / Judge Dre presiding" — the track stages a complete mock trial, "in the case of N.W.A. vs. the Police Department," with Dr. Dre presiding as judge, swearing witnesses and keeping order. The community the courts usually judge seizes the judge's office for itself.

Why: The lyric does not merely name a judge; it performs the judge's office as the entry defines it — the officer appointed to preside and administer the law in a court of justice, charged with control of proceedings. Genu...

**[Humanity] — Humanity / Fiction & Film**

**[Arthur Miller, The Crucible, 1953]**

(paraphrase) In The Crucible, Deputy Governor Danforth presides over the Salem witch trials — the stage image of judicial office bent to hysteria, where procedure keeps running after justice has left the room. (paraphrase)

Why: Entry defines the judge as the public officer charged with control of proceedings and decision of questions of law; Danforth is fiction's sharpest study of that office misused.

## JUDGER.

A Cheshire juryman. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## JUDGMENT.

The official and authentic decision of a court of Justice upon the re- spective rights and claims of the parties to an action or suit therein litigated and sub- mitted to its determination. People v. He- bei. 19 Colo. App. 523, 76 Pac. 550; Bullock v. Bullock, 52 N. J. Eq. 561, 30 Atl. 676, 27

L. It. A. 213, 46 Am. St. Rep. 528; Epprlght v. Kauffman, 90 Mo. 25, 1 S. W. 736; State

v. Brown & Sharpe Mfg. Co., 18 R. I. 16, 25 Atl. 246, 17 L. R. A. 856.

The final determination of the rights of the parties In an action or proceeding. Pear- son v. Lovejoy, 53 Barb. (N. Y.) 407 ; Har- bin v. State, 78 Iowa, 263, 43 N. W. 210; Bird v. Young, 56 Ohio St. 210, 46 N. E. 819; In re Smith’s Estate, '98 Cal. 636, 33 Pac. 744; In re Beck, 63 Kan. 57, 64 Pac. 971; Bell v. Otts, 101 Ala. 186, 13 South. 43. 46 Am. St Rep. 117.

The sentence of the law pronounced by the court upon the matter appearing from the previous proceedings In the suit It Is the conclusion that naturally follows from the premises of law and fact Branch v. Branch, 5 Fla. 450; In re Sedgeley Ave., 88 Pa. 513.

The determination or sentence of the law, pronounced by a competent Judge or court as the result of an action or proceeding In- stituted In such court, affirming that upon the matters submitted for its decision, a legal duty or liability does or does not ex- ist. 1 Black, Judgm. $ 1; Gunter v. Earnest 68 Ark. 180, 56 S. W. 876.

The term “judgment” is also used to de- note the reason which the court gives for its

decision; but this Is more properly denomi- nated an “opinion.”

Classification. Judgments are either in rent or in personam; as to which see Judg- ment in Rem, Judgment in Personam.

Judgments are either final or interlocu- tory. A final judgment Is one which puts, an end to an action at Jaw by declaring that the plaintiff either has or has not en- titled himself to recover the remedy he sues for. 3 Bl. Comm. 398. So distinguished from interlocutory judgments, which merely establish the right of the plaintiff to recov- er, in general terms. Id. 397. A judgment which determines a particular cause. Bost- wick v. Brinkerhoff, 106 U. S. 3, 1 Sup. Ct 15. 27 L. Ed. 73; Klever v. Seawall, 65 Fed. 377, 12 C. C. A. 653 ; Pfeiffer v. Crane, 89 Ind. 487; Nelson v. Brown. 59 Vt. 601, 10 Atl. 721. A judgment which cannot be ap- pealed from, which is perfectly conclusive upon the matter adjudicated. Snell v. Cot- ton Gin Mfg. Co., 24 Pick. (Mass.) 300. A judgment which terminates all litigation on the same right. The term “final judgment," in the judiciary act of 1789, § 25, includes both species of judgments as Just defined.

1 Kent, Comm. 316; Weston v. Charleston,

2 Pet. 494, 7 L. Ed. 481 ; Forgay v. Conrad, 6 How. 201, 209, 12 L. Ed. 404. A judgment which is not final is called “iuterlocutory ;” that is, an interlocutory judgment is one which determines some preliminary or sub- ordinate point or plea, or settles some step, Question, or default arising in the progress of the cause, but does not adjudicate the ulfimate rights of the parties, or finally put the case out of eourt. Thus, a judgment or order passed upon any provisional or ac- cessory claim or contention is, In general,

merely interlocutory, although it may final- ly dispose of that particular matter. 1 Black, Judgm. { 21.

Judgments are either domestic or foreign. A judgment or decree is domestic in the courts of the same state or country where it was originally rendered ; in other states or countries it is called foreign. A foreign judgment is one rendered by the courts of a state or country politically and judicially distinct from that where the Judgment or Its effect is brought in question. One pro- nounced by a tribunal of a foreign country, or of a sister state. Karns v. Kunkle, 2 Minn. 313 (Gil. 268) ; Gulick v. Loder, 13 N.

J. Law, 68, 23 Am. Dec. 711.

A judgment may be upon the merits, or it may not. A judgment on the merits is one which is rendered after the substance and matter of the case have been judicially in- vestigated, and the court has decided which party is in the right; as distinguished from a judgment which turns upon some prelimi- nary matter or technical point, or which, in consequence of the act or default of one of the parties, is given without a contest or trial.

Of judgments rendered without a regular trial, or without a complete trial, the sev- eral species are enumerated below. And first:

Judgment by default is a judgment ob- tained by one party when the other party neglects to take a certain necessary step in the action (as, to enter an appearance, or to plead) within

the proper time. In Louisi- ana, the term “ contradictory Judgment” is used to distinguish a judgment given after the parties have been heard, either in sup- port of their claims or in their defense, from a judgment by default. Cox’s Exec- utors v. Thomas, 11 La. 366.

Judgment by confession is where a de- fendant gives the plaintiff a cognovit or written confession of the action (or “confes- sion of judgment,” as it is frequently call- ed) by virtue of which the plaintiff enters judgment.

Judgment nil dicit is a judgment rendered for the plaintiff when the defendant “says nothing ;” that is, when he neglects to plead • to the plaintiff’s declaration within the prop- er time.

Judgment by non sum informatus is one which is rendered when, instead of entering a plea, the defendant’s attorney says he is not informed of any answer to be given to the action. Steph. PI. 130.

Judgment of nonsuit is of two kinds, — voluntary and Involuntary. When plaintiff abandons his case, and consents that judg- ment go against him for costs, It Is volun- tary. But when he, being called, neglects to appear, or when he has given no evidence on which a jury could find a verdict. It is in- voluntary. Freem. Judgm. § 6.

Judgment of retraxit. A Judgment ren- dered where, after appearance and before

verdict, the plaintiff voluntarily goes into court and enters on the record that he “withdraws his suit." It differs from a non- suit In the latter case the plaintiff may sue again, upon payment of costs; but a retraxit is an open, voluntary renunciation of his claim in court, and by it he forever loses his action.

Judgment of nolle prosequi. This judg- ment is entered when plaintiff declares that he will not further prosecute his suit, or en- try of a stet processus, by which plaintiff agrees that all further proceedings shall be stayed.

Judgment of non pros. ( non prosequitur) is one given against the plaintiff for a neg- lect to take any of those steps which it is incumbent on him to take in due time.

Judgment Of cassetur breve or 6<llo (that the writ or bill be quashed) is a judgment rendered in favor of a party pleading in abatement to a writ or action. Steph. PL 130, 131.

Judgment of nil capiat per breve or per billam is a judgment in favor of the defend- ant upon an issue raised upon a declaration or peremptory plea.

Judgment quod partes replacitent. This is a judgment of repleader, and is given if an issue is formed on so immaterial a point that the court cannot know for whom to give judgment. The parties must then re- construct their pleadings.

Judgment of respondeat ouster is a judg- ment given against the defendant, requir- ing him to “answer over,” after he has fail- ed to establish a dilatory plea upon which an issue in law has been raised.

Judgment quod recuperet is a judgment in favor of the plaintiff, (that he do recov- er,) rendered when be has prevailed upon an issue in fact or an issue in law other than one arising on a dilatory plea. Steph.

PI. 126.

Judgment non obstante veredicto is a Judgment entered for the plaintiff “notwith- ' standing the verdict" which has been given for defendant; which may be done where, after verdict and before Judgment, it ap- pears by the record that the matters plead- ed or replied to, although verified by the verdict, are insufficient to constitute a de- fense or bar to the action.

Special, technical names are given to the judgments rendered in certain actions. These are explained as follows:

Judgment quod computet is a judgment in an action of account-render that the defend- ant do account.

Judgment quod partitio fiat is the inter- locutory Judgment in a writ of partition, that partition be made.

Judgment quando avcidcrint. If on the plea of plcne administravit in an action against an executor or administrator, or on the plea of riens per descent in an action against an heir, the plaintiff, instead of

taking issue on the plea, take judgment of assets quando acciderint, in this case, if assets afterwards come to the hands of the executor or heir, the plaintiff must first sue out a scire facias, before he can have ex- ecution. If, upon this scire facias, assets be found for part, the plaintiff may have judgment to recover so much immediately, and the residue of the assets in futuro. 1 Sid. 448.

Judgment de melioribus damnis. Where, in an action against several persons for a Joint tort, the jury by mistake sever the damages by giving heavier damages against one defendant than against the others, the plaintiff may cure the defect by taking judg- ment for the greater damages (do meliori- bus damnis) against that defendant, and entering a nolle prosequi (q. v.) against the others. Sweet.

Judgment in error is a Judgment rendered by a court of error on a record sent up from an inferior court

Other compound and descriptive terms. A conditional judgment is one whose force depends upon the performance of certain acts to be done in the future by one of the parties; as, one which may be- come of no effect if the defendant appears and pleads according to its terms, or one which orders the sale of mortgaged property in a foreclosure proceeding unless the mort- gagor shall pay the amount decreed within the time limited. Mahoney v. Loan Ass'n ,(C. C.) 70 Fed. 513; Simmons v. Jones, 118

N. C. 472, 24 S. JJ. 114. Consent judgment. One entered upon the consent of the pat- ties, and in pursuance of their agreement as to what the terms of the judgment shall be. Henry v. Hilliard, 120 N. C. 479, 27 S.

E. 130. A dormant judgment is one which has not been satisfied nor extinguished by lapse of time, but which has remained so long unexecuted that execution cannot now be Issued upon it without first reviving the Judgment. Draper v. Nixon, 93 Ala. 436, 8 South. 489. Or one which has lost its lien on land from the failure to issue execution on it or take other

steps to enforce it with- in the time limited by statute. 1 Black, Judgm. (2d ed.) § 462. Judgment nisi. At common law, this was a judgment entered on the return of the nisi prlHs record, which, according to the terms of the postea, was to become absolute unless otherwise or- dered by the court within the first four days of the next succeeding term. See U. S. v. Winstead (D. C.) 12 Fed. 51; Young v. Mc- Pherson, 3 N. J. Law, 897. Judgment of his peers. A trial by a Jury of twelve men ac- cording to the course of the common law. Fetter v. Wilt, 46 Pa. 460; State v. Simons, 61 Kan. 752, 60 Pac. 1052; Newland v. Marsh, 19 111. 382.

— Judgment-book. A book required to be kept by the clerk, among the records of the court, for the entry of judgments. Code N. Y. ( 279. In re Weber, 4 N. D. 119, 59 N. W.

528, 28 L. R. A. 621. — Judgment creditor. One who ia entitled to enforce a judgment by execution, (a. v.) The owner of an unsatisfied judgment Jmdgniant debtor. A person against whom judgment has been recovered, and which remains unsatisfied Judgment debtor summons. Under the English bankruptcy act, 1861, {| 76-85, these summonses might he issued against both traders and non-traders, and, in default of payment of, or security or agreed, composition for, the debt, the debtors might be hdjudicated bankrupt. This act was repealed by 82 & 33 Viet c. 83, § 20. The 32 & 33 Viet c. 71, however, (bankruptcy act, I860,) provides (section 7) for the granting of a “debtor’s sum- mons,” at the instance of creditors, and, in the event of failure to pay or compound, a petition for adjudication may be presented, unless in the events provided for by that section. Whart- on.—Judgment debts. Debts, whether on simple contract or by specialty, for the recovery of which judgment has been entered up, either upon a cognovit br upon a warrant of attorney or as the result of a successful action. Brown. — Judgment docket. A list or docket of the judgments entered in a given court, methodical- ly kept by the clerk or other proper officer, open to public inspection, and Intended to afford of- ficial notice to interested parties of the exist- ence or lien of judgments.— Judgment lien. A lien binding the real estate of a judgment debtor, in favor of the holder of the judgment, and giving the latter a right to levy on the land for the satisfaction of his judgment to the exclusion of other adverse interests subsequent to the judgment. Ashton v. Slater, 19 Minn. 351 (Gil. 300) : Shirk v. Thomas, 121 Ind. 147, 22 N, B. 976, 16 Am. St. Rep. 381 .-Judg- ment note. A promissory note, embodying an authorization to any attorney, or to a designat- ed attorney, or to the holder, or the clerk of the court, to enter an appearance for the maker and confess a judgment against him for a sum there- in named, upon default of payment of the note. —Judgment paper. In English practice. A sheet of paper containing an incipitur of the pleadings in an action at law, upon which final judgment is signed by the master. 2 Tidd, Pr. 930. — Judgment record. In English practice. A parchment roll, on which are transcribed the whole proceedings in the cause, deposited and filed of record in the treasury of the court, after signing of judgment 3 Steph. Comm. 632. In American practice, the record is signed, filed, and docketed by the clerk.— Jndgment roll. In English practice. A roll of parchment con- taining the entries of the proceedings in an ac- tion at law to the entry of judgment inclusive, and which is filed in the treasury of the court. 1 Arch. Pr. K. B. 227, 228; 2 Tidd. Pr. 931. See Roli..— Junior judgment. One which was

rendered or entered after the rendition or entry of another judgment, on a different claim, against the same defendant.— Money jndg- ment. One which adjudges the payment of a sum of money, as distinguished from one direct- ing an act to be done or property to be restored or transferred. Fuller v. Aylesworth, 75 Fed. 694, 21 C. C. A. 505; Pendleton v. Cline, 85 Cal. 142, 24 Pac. 659.— Personal jndgment. One imposing on the defendant a personal lia- bility to pay it, and which may therefore be sat- isfied out of any of his property which is with- in the reach of process, ns distinguished from one which may be satisfied only out of a par- ticular fund or the proceeds of particular prop- erty. Thus, in a mortgage foreclosure suit, there may be a personal judgment against the mortgagor for any deficiency that may remain after the sale of the mortgaged premises. See Bardwell v. Collins, 44 Minn. 97, 46 N. W. 315, 9LR.A. 152, 20 Am. St. Rep. 547.— Pocket Jndgment. A Btatute-merchant which was en- forceable at any time after non-payment on the day assigned, without further proceedings. Wharton.

JUDGMENT n PERSONAM. A judg- ment against a particular person, as distin- guished from a judgment against a thing or a right or status. The former class of Judg- ments are conclusive only upon parties and privies; the latter upon all the world. See next title.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: Res judicata — a final judgment on the merits bars relitigation of the same claim]**

A final judgment on the merits is conclusive between the parties and their privies and bars relitigation of the same claim — the preclusion the entry's classification of final judgments is built for.

Why: Res judicata is the genuine doctrine for which 'final judgment' is the operative category; it names what the entry's long classification serves.

**[Scripture] — Scripture**

**[Matthew 7:2, KJV]**

For with what judgment ye judge, ye shall be judged: and with what measure ye mete, it shall be measured to you again.

Why: The entry is the court's official decision on the parties' rights. The verse states the reciprocal moral law of judgment itself — the measure a judge applies returns upon the judge — genuinely illuminating what a 'jud…

**[Hip-hop] — Hip-hop**

**[2Pac, 'Only God Can Judge Me', 1996]**

"Only God can judge me, is that right? / Only God baby, nobody else, nobody else" — against the entry's "official and authentic decision of a court of Justice," Shakur reserves the office of judgment to God alone and voids every human court's claim on him.

Why: The lyric is a direct theological counter-claim on the very office the entry defines: who has standing to render judgment. The legal judgment is the court's final determination of rights; the song denies that standing…

## JUDGMENT IN REM.

A judgment in rem is an Adjudication, pronounced upon the status of some particular subject-matter, by a tribunal having competent authority for that purpose. It differs from a judg- ment in personam, in this: that the latter Judgment is in form, as well as substance, between the parties claiming the right ; and that it is so inter partes appears by the rec- ord itself. It is binding only upon the par- ties appearing to be such by the record, and those

claiming by them. A judgment in rem is founded on a proceeding instituted, not against the person, as such, but against or upon the thing or subject-matter itself, whose state or condition is to be determin- ed. It is a proceeding to determine the state or condition of the thing Itself; and the judgment is a solemn declaration upon the status of the thing, and it ipso facto renders It what It declares it to be. Wood- ruff v. Taylor, 20 Vt. 73. And see Martin v. King, 72 Ala. 360; Lord v. Chadbourne, 42 Me. 429, 66 Am. Dec. 290; Hlue v. Hus- sey, 45 Ala. 496; Cross v. Armstrong, 44 Ohio St. 613, 10 N. E 160.

Various definitions have been given of a jndg- ment in rem, but all are criticised as either in- complete or comprehending too much. It is generally said to be a jndgment declaratory of the status of some subject-matter, whether this be a person or a thing. Thus, the probate of a will fixes the status of the document as a will. The personal rights and interests which follow are mere incidental results of the status or character of the paper, and do not appear on the face of the judgment So, a decree estab- lishing or dissolving a marriage is a judgment in rem, because it fixes the status of the per- son. A judgment of forfeiture, by the nroper tribunal, against specific articles or goods, for a violation of the revenue laws, is a judgment in rem. But it is objected that the customary definition does not fit such a case, because there is no fixing of the status of anything, the whole effect being a seizure, whatever the thing may be. In the foregoing instances, and many oth- ers, the judgment is conclusive against all the world, without reference to actual presence or participation in the proceedings. If the ex- pression “strictly in rem" msy be applied to any class of cases, it should be confined to such as these. “A very able writer says: ‘The distin- guishing characteristic of judgments in rem is that, wherever their obligation is recognized and enforced as against any person, it is equally rec- ognized and enforced as against all persons.' It seems to us that tbe true definition of a ‘judg- ment in rem’ is ‘an adjudication’ against some person or thing, or upon the status of some sub- ject-matter; which, wherever and whenever binding upon any person, is equally binding up- on all persona." Bartero v. Real Estate Savings Bank, 10 Mo. App. 78.

Jsdieuilu eat legibns, son eztap- lis. Judgment ia to be given according to

the laws, not according to examples or prece- dents. 4 Coke, 336; 4 Bl. Comm. 405.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: judgments in rem are conclusive erga omnes — against all the world]**

A judgment strictly in rem is conclusive against all the world, wherever its obligation is recognized — binding strangers as well as parties.

Why: The entry itself (quoting Bartero) states the distinguishing characteristic; the footnote distills it into canonical form — genuine, drawn from the entry's own authority.

## JUDICARE.

Lat In the civil and old English law. To Judge; to decide or de- termine Judicially ; to give Judgment or sentence.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 7:24, KJV]**

Judge not according to the appearance, but judge righteous judgment.

Why: The entry is the act of judging — deciding judicially. The verse commands the manner of that act: not by appearance but righteously — a direct bearing on the judicial function defined.

## JUDICATIO.

Lat. In the civil law. Judging; the pronouncing of sentence, after hearing a cause. Haliifax, Civil Law, b. 3, c. 8, no. 7.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## JTTDICATORES TERR ARUM.

Lat

Persons In the county palatine of Chester, who, on a writ of error, were to consider of the Judgment given there, and reform it; otherwise they forfeited £100 to the crown by custom. Jenk. Cent 71.

JUDICATURE. 1. The state or profes- sion of those officers who are employed in administering Justice; the Judiciary.

2. A judicatory, tribunal, or court of jus- tice.

3. Jurisdiction ; the right of Judicial ac- tion; the scope or extent of Jurisdiction.

— Judicature acts. The statutes of 36 & 37 Viet. c. 66, and 38 & 39 Viet c. 77, which went into force November 1, 1875, with amendments in 1877, c. 9 ; 1879, c. 78 ; and 1881, c. 68,— made most important changes in the organiza- tion of, nnd methods of procedure in, the supe- rior courts of England, consolidating them to- gether so as to constitute one supreme court of judicature, consisting of two divisions, — her ma- jesty's high court of justice, having chiefly orig- inal jurisdiction ; and her majesty’s court of appeal, whose jurisdiction is chiefly appellate.

Judioes non tenentnr ezprimere can- sun sentential ante. Jenk. Cent. 75. Judges are not bound to explain the reason of their sentence.

5e apparatus — Not carried into the 5th edition (1979).

## JUDICES ORDINARH.

Lat In the

civil law. Ordinary indices; the common indices appointed to try causes, and who, according to Blackstone, determined only questions of fact 3 Bl. Comm. 315.

5e apparatus — Not carried into the 5th edition (1979).

## JUDICES PEDANEI.

Lat. In the civil law. The ordinary indices appointed by the prretor to try causes.

5e apparatus — Not carried into the 5th edition (1979).

## JUDICES SELECTI.

Lat In the civil law. Select or selected indices or judges; those who were used In criminal causes, and between whom and modern jurors many points of resemblance have been noticed. 3 Bl. Comm. 366.

Judici officium mum ezeedenti son paretur. A judge exceeding his office Is not to be obeyed. Jenk. Cent p. 139, case 84. Said of void Judgments.

Judicl satis poena est, quod Deum hab- ot ultorem. It Is punishment enough for a Judge that he has God as his avenger. 1 Leon. 295.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. VI & VII — right to trial by jury]**

The Roman selecti, whom the entry likens to modern jurors, find their modern guarantee in the constitutional jury-trial clauses.

Why: The entry itself draws the selecti-to-juror resemblance; the Sixth and Seventh Amendments are the genuine modern legal form of that institution — the link follows the entry's own bridge.

## JUDICIA.

Lat. In Roman law. Judi- cial proceedings; trials. Judicia publica, criminal trials. Dig. 48, 1.

Judicia in curia regia non adnlhllen- tur, sed stent in robore suo quousque per errorem ant attinetum adnallentur.

Judgments in the king’s courts are not to l>e annihilated, but to remain in force until an- nulled by error or attaint 2 Inst 539.

Judicia in deliberationlbns crebro ma- turescunt, in aceelerato prooessn nun- quam. Judgments frequently become ma- tured by deliberations, never by hurried pro- cess or precipitation. 3 Inst. 210.

Judicia posteriora snnt in lege forti- ora. 8 Coke, 97. The later decisions are the stronger in law.

Judicia snnt tanquam juris dicta, et pro veritate accipiuntur. Judgments are, as it were, the sayings of the law, and are received as truth. 2 Inst 537.

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**[Law] — Law**

**[Maxim: Judicia posteriora sunt in lege fortiora — the later decisions are the stronger in law]**

The entry's maxim — the later decisions are the stronger in law — is the classical statement of the rule that later decisions in the same line control earlier ones.

Why: The maxim is quoted verbatim in the entry (8 Coke, 97); the footnote gives it in canonical form with its modern meaning — no invented content.

## JUDICIAL.

Belonging to the office of a judge; as judicial authority.

Relating to or connected with the adminis- tration of justice; as a judicial officer.

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Having the character of judgment or for- mal legal procedure; as a judicial act

Proceeding from a court of Justice ; as a judicial writ a judicial determination. —Judicial action. Action of a court upon a cause, by hearing it, and determining what shall be adjudged or decreed between the parties, and with which is the right of the case. Rhode Island v. Massachusetts, 12 Pet. 718, 9 L. Ed. 1233; Kerosene Lamp Heater Co. v. Monitor Oil Stove Co., 41 Ohio St. 293.— Judicial acta. Acts requiring the exercise of some judicial discretion, as distinguished from ministerial acts, which require none. Ex parte Kellogg, 6 Vt 510; Mills v. Brooklyn. 32 N. Y. 497; Recla- mation Dist. v. Hamilton, 112 Cal. 603, 44 Pac. 1074 ; Perry v. Tynen, 22 Barb. (N. Y.) 140.— Judicial admissions. Admissions made voluntarily by a party which appear of record in the proceedings of the court.— Judicial authority. The power and authority appertain- ing to the office of a judge; jurisdiction; the official right to hear and determine questions in controversy.— Judicial business. Such as involves the exercise of judicial power, or the ap- plication of the mind and authority of a court to some contested matter, or the conduct of ju- dicial proceedings, as distinguished from such ministerial and other acts, incident to the prog- ress of a cause, as may be performed by the par- ties. counsel, or officers of the court without ap- plication to the court or judge. See Heisen v. Smith. 138 Cal. 216. 71 Pac. 180, 94 Am. St. Rep. 39; Merchants Nat. Bank v. Jaffray, 36 Neb. 218, 54 N. W. 258, 19 L. R. A. 316 ; State v. California Min. Co., 13 Nev. 214.— Judicial committee of the privy eounoil. In Eng- lish law. A tribunal composed of members of the privy council, being judges or retired judg- es. which acts as the king’s adviser in matters of law referred to it, and exercises a certain appellate jurisdiction, chiefly in ecclesiastical causes, though its power in this respect was curtailed by the judicature act of 1873.— Ju- dicial confession. In the law of evidence. A confession of guilt, made by a prisoner be- fore a magistrate, or in court, in the due course of legal proceedings. 1 Green! Ev. f 216;

White v. State, 49 Ala. 348 ; U. S. v. Williams, 28 Fed. Cas. M3 ; State v. Lamb, 28 Mo. 218 ; Speer v. State, 4 Tex. App. 479 — Judicial conventions. Agreements entered into in consequence of an order of court ; as, for example, entering into a bond on taking out a writ of se- questration. Penniman v. Barrymore, 6 Mart.

N. S. (La.) 494.— Judicial decisions. The opinions or determinations of the judges in caus- es before them, particularly in appellate courts. Le Blanc v. Illinois Cent. It. Co., 73 Miss. 463,

South. 211 Judicial dicta. Dicta made

by a court or judge in the course of a judicial decision or opinion. Com. v. Paine, 207 Pa. 45, 56 Atl. 317. See Dictum. — Judicial district. One of the circuits or precincts into which a state is commonly divided for judicial purposes, a court of general original jurisdiction being usually provided in each of such districts, and the boundaries of the district marking the territorial limits of its authority ; or the district may include two or more counties, having separate and independent county courts, but in that case they are presided over by the same judge. See Ex parte Gardner, 22 Nev. 280. 39 Pac. 570; Lindsley v. Coahoma County Sup’rs, 69 Miss. 815, 11 South. 336 ; Com. v. Hoar, 121 Mass. 377.— Judicial oath. One taken

before an officer in open court, as distinguished from a .“non-judicial'' oath, which is taken before an officer ex parte or out of court State v. Drei- fus, 38 La. Ann. 877.— Judicial officer. A person in whom is vested authority to decide causes or exercise powers appropriate to a court. Settle v. Van Evrea, 49 N. Y. 284: People v. Wells, 2 Cal. 203 ; Reid v. Hood. 2 Kott & McC. (S. C.) 170, 10 Am. Dec. 582. —Judicial power. The authority vested in -courts and judges, as distinguished from the ex- ecutive and legislative power. Gilbert v. Priest, 65 Barb. (N. Y.) 448; In re Walker, 68 App. Div. 196, 74 N. Y. Supp. 94 ; State v. Denny, 118 Ind. 382, 21 N. E. 252, 4 L. R. A. 79 ; U.

S. v. Kendall, 26 Fed. Cas. 753.— Judicial proceedings. A general term for proceedings relating to, practiced in, or proceeding from, a court of justice; or the course prescribed to he taken in various cases for the determination of a controversy or for legal redress or relief. See Hereford v. People, 197 111. 222, 64 N. E. 310 : Martin v. Simpkins, 20 Colo. 438, 38 Pac. 1092; Mullen v. Reed, 64 Conn. 240. 29 Atl. 478, 24 L. R. A. 664, 42 Am. St. Rep. 174; Aldrich v. Kinney, 4 Conn. 386, 10 Am. Dec. 151.— Judicial question. One proper for the determination of a court of justice, as distin- guished from such questions as belong to the decision of the legislative or executive depart- ments of government and with which the courts will not interfere, called “political" or “legis- lative” questions. See Patton v. Chattanooga, 108 Tenn. 197, 65 S. W. 414.— Judicial rem- edies. Such as are administered by the courts of justice, or by judicial officers empowered for that purpose by the constitution and laws of the state. Code Civ. Proc. Cal. 1903. 8 20: Code Civ. Proc. Mont. 1895, i 3469.— Judicial separation. A separation of man and wife by decree of court, less complete than an absolute divorce : otherwise called a “limited divorce.” —Judicial statistics. In English law. Sta- tistics. published by authority, of the civil and criminal business of the United Kingdom, and matters appertaining thereto. Annual reports are published separately for England and Wales, for Ireland, and for Scotland.— Quasi judicial. A term applied to the action, discretion, etc., of public administrative officers, who are requir- ed to investigate facts, or ascertain the exis- tence of facts, and draw conclusions from them, as a basis for their official action, and to exer- cise discretion of a judicial nature. See Bair v. Struck, 29 Mont. 45, 74 Pac. 69, 63 L. R. A. 481 : Mitchell v. Clay County, 69 Neb. 779, 96

N. W. 678; De Weese v. Smith (C. C.) 97 Fed. 817. .

As to Judicial “Day,” “Deposit,” “Discre- tion,” “Documents,” “Evidence,” “Factor,” “Mortgage,” “Notice," “Process,” “Sales," “Sequestration,” and “Writs,” see those ti- tles.

JUDICIARY, adj. Pertaining or relat- ing to the courts of justice, to the judicial department of government, or to the admin- istration of justice.

JUDICIARY, ». That branch of govern- ment Invested with the Judicial power; the system of courts in a country; the body of judges; the bench.

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**[Law] — Law**

**[Marbury v. Madison, 5 U.S. 137 (1803) — judicial review]**

Judicial power — the authority vested in courts as distinct from legislative and executive power — received its canonical American elaboration when the Supreme Court asserted review of legislative and executive acts.

Why: The entry defines judicial power by cases; Marbury is the genuine foundational case on what that power includes — confident the citation is real.

## JUDICIARY ACT.

The name commonly given to the act of congress of September 24, 1789, (1 St at. Large, 73,) by which the system of federal courts was organized, and their powers and Jurisdiction defined.

Judicils posterioribus tides est adhi- benda. Faith or credit is to be given to the later judgments. 13 Coke, 14.

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**[Law] — Law**

**[Marbury v. Madison, 5 U.S. 137 (1803)]**

Section 13 of this very Act — the mandamus provision — was the jurisdictional grant the Supreme Court struck down as unconstitutional.

Why: The link is internal and historical: Marbury invalidated §13 of the Act the entry defines; genuine, not forced.

## JUDICIO SISTI.

Lat A caution, or se- curity, given in Scotch courts for the defend- ant to abide judgment within the jurisdic- tion. Stim. Law Gloss.

Jndicia est la pronnatloado aequi reg- nlom, exceptions non probata. The judge in his decision ought to follow the rule, when the exception is not proved.

Jadicis est jadlcare secundam allegata et probata. Dyer, 12. It is the duty of a judge to decide according to facts alleged and proved.

Jndicia est jns dleere, non dare. It is

the province of a judge to declare the law, not to give it Loftt, Append. 42.

Jndicis offlcium est opus diei in die no perficere. It is the duty of a judge to finish the work of each day within that day. Dy- er, 12.

Jndicis officiant est at res, ita tempore rerun, queerer*. It is the duty of a judge to inquire into the times of things, as well as into things themselves. Co. Litt 171.

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## JUDICIUM.

Lat Judicial authority or Jurisdiction ; a court or tribunal ; a judicial hearing or other proceeding; a verdict or Judgment; a proceeding before a Judex or Judge. State v. Whltford, 54 Wis. 150, 11

N. W. 424.

— Judicium capital*. In old English law. Judgment of death ; capital judgment. Fletn, lib. 1, c. 39, S 2. Called.- also, "judicium vita-, omistionis," judgment of loss of life. Id. lib. 2. c. 1, f 5

— Judicium Dei. In old English and European law. The judgment of God ; other- wise called "divinvm judicium," the "divine judgment.” A term particularly applied to the ordeals by fire or hot iron and water, and also to the trials by the cross, the eucharist, and the corsned, and the duellum or trial by battle, (q.

«.,) It being supposed that the interposition of heaven was directly manifest, in these cases, in behalf of the innocent. Spelman ; BurrilL— Judicium p&rium. In old English law. Judgment of the peers ; judgment of one’s peers ; trial by jury. Magna Charts, c. 29.

Judicium a non sno judice datum nul- lins est moment!. 10 Coke, 70. A judg- ment given by one who Is not the proper judge U of no force.

Jadicium est quasi juris dictum. Judg- ment is, as it were, a declaration of law.

Judicium non debet esse illusorium| ■uum effectum habere debet. A judgment ought not to be illusory; it ought to have its proper effect 2 Inst 341.

Judicium redditur in invitum. Oo.

Litt 248b. Judgment is given against one, whether he will or not

Judielum (semper) pro veritate acci- pitur. A judgment is always taken for truth, [that is, as long as it stands in force it cannot be contradicted.] 2 Inst 380; Co. Litt 39a, 168a.

J"UG. In old English law. A watery place. Domesday; Cowell.

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**[Law] — Law**

**[Law: Magna Carta c. 29 (1225) — judicium parium; 'law of the land']**

Judicium parium — judgment of peers — is Magna Carta's guarantee: no free man to be seized or imprisoned 'except by the lawful judgment of his equals or by the law of the land,' the ancestor of due process.

Why: The entry itself cites 'Magna Charta, c. 29' for judicium parium; the footnote gives the chapter's genuine content — anchored in the entry's own authority.

## JUGE.

In French law. A Judge.

— Juge de pain. An inferior judicial func- tionary, appointed to decide summarily contro- versies of minor importance, especially such as turn mainly ,on questions of fact. He has also the functions of a police magistrate. FerriCre. —Juge destruction. See Instruction.

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## JUGEBUX.

An acre. Co. Lltt. 6b. As much as a yoke (jugutn) of oxen could plow in one day.

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## JUGUXATOB.

In old records. A cut- throat or murderer. CowelL

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## JTJGUM.

Lat In the civil law. A yoke ; a measure of land ; as much land as a yoke of oxen could plow in a day. Nov. 17, c. 8.

— Jngum terras. In old English law. A yoke of land ; half a plow-land. Domesday ; Co. Ditt. 5a; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## JUICIO.

In Spanish law. A trial or suit White, New Recop. b. 3, tit. 4, c. 1.

— Juicio de apeo. The decree of a competent tribunal directing the determining and marking the boundaries of lands or estates.— Juicio de eoncurso de acreedores. The judgment granted for a debtor who has various creditors, or for such creditors, to the effect that their claims be satisfied according to their respective form and rank, when the debtor’s estate is not sufficient to discharge them all in full. Es- criche.

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**[Law] — Law**

**[Law: 11 U.S.C. § 507 — priorities of claims in bankruptcy]**

The juicio de concurso — ranking creditors where the estate cannot pay all in full — is the civil-law ancestor of the modern priority scheme for claims in bankruptcy.

Why: The entry defines the concurso as creditor-ranking in insolvency; §507 is the genuine modern American codification of creditor priority — the link maps old form to living form.

## JUXENT.

In old Scotch law. An ox used for tillage. 1 Pltc. Crlm. Tr. pt. 2, p. 89.

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**[Scripture] — Scripture**

**[Deuteronomy 25:4, KJV]**

Thou shalt not muzzle the ox when he treadeth out the corn.

Why: The entry is an ox used for tillage. The verse concerns exactly that working ox — threshing/treading grain — commanding it not be muzzled while it works: a scriptural rule touching the tillage-ox itself.

## JUXENTA.

In the civil law. Beasts of burden; animals used for carrying burdens. This word did not Include “oxen." Dig. 32, 65, 5.

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## JUMP BAIL.

To abscond, withdraw, or secrete one’s self, in violation of the obliga- tion of a bail-bond. The expression is col- loquial, and is applied only to the act of the principal.

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — 'Excessive bail shall not be required']**

Bail rests on the constitutional prohibition of excessive bail; jumping bail violates the bond obligation and forfeits the security.

Why: The entry defines jumping bail as violation of the bail-bond obligation; the Eighth Amendment's bail clause is the genuine constitutional frame of that institution — the quote is verbatim.

**[Humanity] — Humanity / Fiction & Film**

**[Martin Brest, Midnight Run, 1988]**

(paraphrase) In Midnight Run, bounty hunter Jack Walsh is hired to haul bail-jumper Jonathan Mardukas cross-country — the film's whole plot is the principal absconding on his bond. (paraphrase)

Why: Entry: 'to abscond... in violation of the obligation of a bail-bond.' The film is built on exactly that act; paraphrase marked, no verbatim dialogue needed.

## JUNCARIA.

In old English law. The soil where rushes grow. Co. Lltt 5a; Cow- ell.

Juuctu juvunt. United they aid. A por- tion of the maxim, “Qua non valeant sin- gula juncta fuvant," (q. it.,) frequently cited. 8 Man. & G. 99.

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## JUNGERE DUELLUX.

In old English law. To join the dueUurn; to engage In the combat Fleta, lib. 1, c. 21, 1 10.

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## JUNIOR.

Younger. This has been held to be no part -of a man’s name, but an addi- tion by use, and a convenient distinction be- tween a father and son of the same name. Cobb v. Lucas, 15 Pick. (Mass.) 9; People v. Collins, 7 Johns. (N. Y.) 552; Padgett v. Lawrence, 10 Paige (N. Y.) 177, 40 Am. Dec. 232 ; Prentiss v. Blake, 34 Vt 460.

—Junior right. A custom prevalent in some parts of England (also at some places on the continent) by which an estate descended to the youngest son in preference to his older brothers ; the same as "Borough-English.”

As to' junior “Barrister,” "Counsel," “Cred- itor,” “Execution,” “Judgment,” and “Writ,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## JUNIPERUS SABINA.

In medical ju- risprudence. This plant Is commonly called “savin.”

5e apparatus — Not carried into the 5th edition (1979).

## JUNK-SHOP.

A shop where old cord- age and ships’ tackle, old iron, rags, bottles, paper, etc., are kept aud sold. A place where odds and ends are purchased and sold. Charleston City Council v. Goldsmith, 12 Rich. Law (S. O.) 470.

JUNTA, or JUNTO. A select council for taking cognizance of affairs of great consequence requiring secrecy; a cabal or faction. This was a popular nickname ap- plied to the Whig

ministry in England, be- tween 1693-1696. They clung to each other for mutual protection against the attacks of the so-called “Reactionist Stuart Party.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, The Old Curiosity Shop, 1841]**

(paraphrase) In The Old Curiosity Shop, Little Nell and her grandfather keep a London shop of curiosities and odds and ends — the junk-shop as the fragile center of the novel's world. (paraphrase)

Why: Entry: 'a place where odds and ends are purchased and sold.' Dickens's curiosity shop is the literary archetype — a definitional match, not decoration.

## JUBA.

Lat. Plural of “Jus.” Rights; laws. 1 Bl. Comm. 123. See Jus.

—Jura five alia. In English law. Fiscal rights; rights of the exchequer. 3 Bl. Comm. 45.— Juru in re. In the civil law. Rights in a thing ; rights which, being separated from the dominium, or right of property, exist independ- ently of it. and are enjoyed by some other per- son than him who has the dominium. Mackeld. Rom. Law, { 237.— Juru majeatutis. Rights of sovereignty or majesty; a term used in the

civil law to designate certain rights which be- long to eaoh and every sovereignty and which are deemed essential to its existence. Gilmer v. lime Point, 18 Cal. 250.— Jura mixti do- mlnii. In old English law. Rights of mixed dominion. The king’s right or power of juris- diction was so termed. Hale, Anal. $ 6.— Jura peraonarum. Rights of persons; the rights of persons. Rights which concern and are an- nexed to the persons of men. 1 Bl. Comm. 122. — Jura prndiorum. In the civil law. The rights of estates. Dig. 50, 16, 86 — Jura re- galia. In English law. Royal rights or privi- leges. 1 Bl. Comm. 117, 110 ; 3 Bl. Comm. 44. —Jura regia. In English law. Royal rights ; the prerogatives of the crown. Crabb, Com. Law, 174.— Jura rerun. Rights of things; the rights of things; rights which a man may acquire over external objects or things uncon- nected with his person. 1 Bl. Comm. 122; 2 Bl. Comm. 1. — Jura snmml imperil. Rights of supreme dominion ; rights of sovereignty. 1 BL Comm. 49 ; 1 Kent, Comm. 211.

Jura eoeleaiastlca 11ml tata sunt Infra limites separates. Ecclesiastical laws are limited within separate bounds. 3 Bulst. 53.

Jura eodem modo destituuntur quo eonstitnuatur. Laws are abrogated by the same means [authority] by which they are made. Broom, Max. 878.

Jura naturae sunt lmmutabilia. The laws of nature are unchangeable. Branch, Prlnc.

Jura publioa anteferenda privatis.

Public rights are to be preferred to private. Co. UtL 130a. Applied to protections.

Jura publioa ex privato [privatis] promiseue deeidi non debent. Public rights ought not to be decided promiscuously with private. Co. Lltt 130a, 181b.

Jura regia speeialia non ooncedunturper generalla verba. The special rights of the king are not granted by general words. Jenk. Cent p. 103.

Jura sanguinis nullo jure civil i liMml

poasunt. The right of blood and kindred cannot be destroyed by any civil law. Dig. 50, 17, 9; Bac. Max. reg. 11; Broom, Max. 533; Jackson v. Phillips, 14 Allen (Mass.) 562.

JTOA1. 1. Pertaining to natural or pos- itive right, or to the doctrines of rights and obligations; as “Jural relations.”

2. Of or pertaining to jurisprudence; ju- ristic; Juridical.

3. Recognized or sanctioned by positive law; embraced within, or covered by, the rules and enactments of positive law. Thus, the “Jural sphere” is to be distinguished from the “moral sphere ;” . the latter de- noting the whole scope or range of ethics or the science of conduct the former embracing only such portions of the same as have been

made the subject of legal sanction or recog- nition.

4. Founded in law; organized upon the basis of a fundamental law, and existing for the recognition and protection of rights. Thus, the term “Jural society” is used as the synonym of “state” or “organized political community.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jura eodem modo destituuntur quo constituuntur — laws are abrogated by the same means by which they are made]**

Among the entry's maxims, the canonical rule of legislative power is that laws are undone by the same authority that made them — the basis of repeal by the enacting sovereign.

Why: Quoted verbatim in the entry (Broom, Max. 878); it states a genuine rule of legislative authority, not a decoration — the repeal must come from the lawmaker. [re-homed from 'JURA' to 'JUBA' (OCR headword / parser-merge artifact)]

## JURAMENTUM.

Lat In the civil law. An oath.

— J wnuncntum oalumnise. In the civil and canon law. The oath of calumny. An oath im- posed upon both parties to a suit, as a prelimi- nary to its trial, to the effect that they are not influenced by malice or any sinister motives in prosecuting or defending the same, but by a be- lief in the justice of their cause. It was also required of the attorneys and proctors. — Jura- mentum corporalia. A corporal oath. See Oath. — Juramentum In litem. In the civil law. An assessment oath; an oath, taken by the plaintiff in an action, that the extent of the damages he has suffered, estimated in money, amounts to a certain sum, which oath, in cer- tain cases, is accepted in lieu of other proof. Mackeld. Rom. Law, $ 376.— Juramentum jndiolale. In the civil law. An oath which the judge, of his own accord, defers to either of the parties. It is of two kinds: First, that which the judge defers for the decision of the cause, and which is understood by the general name “juramentum judiciale," and is sometimes called “suppletory oath," juramentum supplet- orium; second, that which the judge defers in order to fix and determine the amount of the condemnation which he ought to pronounce, and which is called “juramentum in litem." Potb. Obi. p. 4, c. 3, f 3, art 3. — Juramentum nec- essarium. In Roman law. A compulsory oath. A disclosure under oath,

which the praet- or compelled one of the parties to a suit to make, when the other, applying for such an ap- peal, agreed to abide by what his adversary should swear. 1 Whart. Ev. { 458 ; Dig. 12, 2, 6, 2.— Juramentum volnntarlnm. In Ro- man law. A voluntary oath. A species of ap- peal to conscience, by which one of the parties to a suit, instead of proving bis case, offered to abide by what his adversary should answer under oath. 1 Whart. Ev. § 458; Dig. 12, 2, 34, 6.

Juramentum est lndivisiblle; et box est admittendum in parte verum et in parte falaum. An oath la Indivisible; it la not to be held partly true and partly false. 4 Inst 274.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1621 — perjury]**

The legal oath catalogued here is given its force by the perjury sanction: false swearing under oath in a proceeding is a federal crime.

Why: The entry catalogs the kinds of oaths taken in proceedings; perjury is the genuine sanction that gives the oath legal consequence — the link names the enforcement, not the definition.

**[Scripture] — Scripture**

**[Leviticus 19:12, KJV]**

And ye shall not swear by my name falsely, neither shalt thou profane the name of thy God: I am the LORD.

Why: The entry is the oath itself (juramentum = an oath), including the oath against calumny imposed on litigants. The verse forbids swearing falsely by God's name — the scriptural sanction behind the oath as a legal instr...

## JUR ARE.

Lat To swear; to take an oath.

Jurare eat Beam in testem vocure, et eat aetua divini cultua. 3 Inst. 165. To swear is to call God to witness, and is an act of religion.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. VI — 'Oath or Affirmation']**

The entry's maxim defines swearing as calling God to witness; American law accommodates conscience by permitting affirmation in place of oath.

Why: The constitutional oath-or-affirmation clause is the genuine modern legal form of the oath the entry defines — it preserves the obligation while releasing the religious form. [re-homed from 'JURARE' to 'JUR ARE' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[Matthew 5:34, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne.

Why: The entry is the act of swearing — 'to call God to witness, and is an act of religion' (3 Inst. 165, quoted in the entry). The verse is Christ's direct teaching on the act of swearing, addressing the very religious we...

## JURAT.

The clause written at the foot of an affidavit stating when, where, and be- fore whom such affidavit was sworn. See

U. S. v. McDermott 140 U. S. 151, 11 Sup. Ct. 746, 35 L. Ed. 391 ; U. S. v. Julian, 162

U. 8. 324, 16 Sup. Ct 801, 40 L. Ed. 984; Lutz v. Kinney, 23 Nev. 279, 46 Pac. 257.

5e apparatus — Not carried into the 5th edition (1979).

## JURATA.

In pld English law. A jury of twelve men sworn. Especially, a jury of

JURI8DICTIO BST POTE8TA8

the common law, as distinguished from the aaaiaa.

The jury clause In a nisi prius record, so called from the emphatic words of the old forms: “Jurata ponitur in rcspectum,” the jury Is put In respite. Townsh. PI. 487. *

Also a jurat, (which see.)

5e apparatus — Not carried into the 5th edition (1979).

## JURATION.

The act of swearing; the administration of an oath.

Jurato creditor in judicio. He who

makes oath Is to be believed in judgment. 3 lust. 79.

5e apparatus — Not carried into the 5th edition (1979).

## J TJRATOR.

A juror; a compurgator, <?• v.)

Joratores debent esse vioini, suffici- ent's, et minus suspect!. Jurors ought to be neighbors, of sufficient estate, and free from suspicion. Jenk. Cent 141.

Joratores sunt jodlces faetl. Jenk. Cent 01. Juries are the judges of fact

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Juratores sunt judices facti — juries are the judges of fact]**

The entry's maxim states the classical division of labor: juries judge the facts, the court declares the law.

Why: Quoted verbatim in the entry (Jenk. Cent. 91); it is the canonical statement of the law/fact allocation between judge and jury — genuine, not invented.

## JURATORY CAUTION.

In Scotch law. A description of caution (security) some- times offered In a suspension or advocation where the complainer is not In circumstan- ces to offer any better. Belt

5e apparatus — Not carried into the 5th edition (1979).

## JURATS.

In English law. Officers In the nature of aldermen, sworn for the gov- ernment of many corporations. The twelve assistants ot the bailiff in Jersey are called •‘jurats.”

5e apparatus — Not carried into the 5th edition (1979).

## JURE.

Lat By right; In right; by the law.

—Jure belli. By the right or law of war. 1 Kent, Comm. 126: 1 C. Bob. Adm. 289.— Jure civil!. By the civil law. Inst. 1, 3, 4 ; 1 Bl. Comm. 423.— Jure corona. In right of the crown.— Jure divino. By divine right. 1 Bl. Comm. 191. — Jure eeclesise. In right of the church. 1 Bl. Comm. 401. — Jure emphytenti- eo. By the right or law of emphyteuaia. 3 Bl. Comm. 232. See Empuyteusis Jure gentium. By the law of nations. Inst. 1, 3, 4; 1 Bl. Comm. 423.— Jure propinquitatis. By right of propinquity or nearness. 2 Crabb, Real

Prop. p. 1019, § 2398 Jure representationi>. By right of representation ; in the right of another person. 2 Bl. Comm. 221, 517 ; 2 Crabb, Real Prop. p. 1019, § 2398.— Jure u- oris. In right of a wife. 3 Bl. Comm. 210.

Jure nature eqnam eat neminem cum alter! us detriment** et Injuria fieri locu- pletiorem. By the lnw of nature it Is not just that any one should be enriched by the detriment or injury of another. Dig. 50, 17, 206.

Juri non eat consonant quod allquis accessorius in curia regia convincatur antequaxn allquis de facto fuerit attinc- tns. It is not consonant to justice that any accessary should be convicted In the king's court before any one has, been attainted of the fact. 2 Inst 183.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jure naturae aequum est neminem cum alterius detrimento et injuria fieri locupletiorem]**

The entry's natural-law maxim — that none is to be enriched by another's detriment — is the classical root of the modern law of unjust enrichment and restitution.

Why: Quoted verbatim in the entry (Dig. 50, 17, 206); it states the genuine foundation of restitution — the link names the living doctrine the maxim founded.

## JURIDICAL.

Relating to administration of justice, or office of a judge.

Regular; done In conformity to the laws of the country and the practice which Is there observed.

— Juridical days. Days in court on which the laws are administered.— Juridical evidence. Such as is proper to be adduced before, and con- sidered by, the courts of justice. See Mead v. Ilusted, 52 Conn. 53, 52 Am. Rep. 554.

5e apparatus — Not carried into the 5th edition (1979).

## JURIDICUS.

Lat Relating to the courts or to the administration of justice; juridi- cal; lawful. Dies juridicua, a lawful day for the transaction of business in court; a day on which the courts are open.

5e apparatus — Not carried into the 5th edition (1979).

## JURIS.

Lat Of right; of law.

— Juris et de jure. Of law and of right- A presumption juria et de jure, or an Irrebuttable presumption, is one which the law will not suf- fer to be rebutted by any counter-evidence, but establishes as conclusive ; while a presumption juria tantum is one which bolds good in the ab- sence of evidence to the contrary, but may be rebutted.— Juris et seisins* conjunctio. The union of seisin or possession and the right of possession, forming a complete title. 2 Bl. Comm. 199, 311.— Juris paaltivi. Of positive law; a regulation or requirement of positive law, as distinguished from natural or divine law. 1 Bl. Comm. 439 ; 2 Steph. Comm. 286. —Juris privati. Of private right: subjects

of private property. Hale, Anal. § 23 Juris

public!. Of common right ; of common or public use; such things as, at least in their own use, are common to all the king’s subjects ; as common highways, common bridges, common rivers, and common ports. Hale, Anal. { 23. —Juris utrum. In English law. An abolish- ed writ which lay for the parson of a church whose predecessor had alienated the lands and tenements thereof. Fitsh. Nat. Brev. 48.

Juris sffectus in executions eonsistlt.

The effect of the lnw consists in the execu- tion. Co. Litt. 289b.

Juris igmorantia est cum jus nostrum ignoramus. It is ignorance of the law when we do not know our own rights. Haven v, Foster, 9 Pick. (Mass.) 130, 19 Am. Dec. 353.

Juris prsecepta sunt luces Honeste ri- ver*: alterum non laedere; suum cuique

tribuere. These are the precepts of the law: To live honorably ; to hurt nobody ; to render to every one his due. Inst 1, 1, 3 ; 1 BL Comm. 40.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Juris praecepta sunt haec: honeste vivere, alterum non laedere, suum cuique tribuere]**

Ulpian's three precepts — to live honorably, to hurt nobody, to render to every one his due — are the canonical statement of law's aims, adopted by Blackstone.

Why: Quoted verbatim in the entry (Inst. 1, 1, 3; 1 Bl. Comm. 40); the precepts are the genuine classical foundation of the whole 'juris' family — the most central maxim in the batch.

## JURISCONSULT.

A jurist; a person skilled in the science of law, particularly of international or public law.

5e apparatus — Not carried into the 5th edition (1979).

## JURISCONSULTUS.

Lat In Roman

law. An expert In juridical science; a per- son thoroughly versed In the laws, who was habitually resorted to, for information and advice, both by private persons as his cli- ents,

and also by the magistrates, advocates, and others employed in administering Jus- tice.

Jurisdietio est poteatua de publioo in-, troductu, cum necessitate juris dicendi.'

Jurisdiction is a power introduced for the public good, on account of the necessity of dispensing justice. 10 Coke, 73a.

5e apparatus — Not carried into the 5th edition (1979).

## JURISDICTION.

The power and au- thority constitutionally conferred upon (or constitutionally recognized as existing In), a court or judge to pronounce the sentence of the law, or to award the remedies provided by law, upon a state of facts, proved or ad- mitted, referred to the tribunal for decision, and authorized by law to be the subject of investigation or action by that tribunal, and in favor of or against persons (or a rex) who present themselves, or who are brought be- fore the court in some manner sanctioned by law as proper and sufficient. 1 Black, Judgm. f 215. And see Nenno v. Railroad Co., 105 Mo. App. 540, 80 S. W. 24 ; Ingram v. Fuson, 118 Ky. 882, 82 8. W. 600; Tod v. Crlsman, 123 Iowa, 693, 99 N. W. 686; Harrlgan v. Gilchrist, 121 Wis. 127, 99 N. W. 909 ; Wight- man v. Karsner, 20 Ala. 451 ; Reynolds v. Stockton, 140 U. S. 254, 11 Sup. Ct. 773, 35

L. Ed. 464; Templeton v. Ferguson, 89 Tex. 47, 33 S. W. 329; Succession of Weigel, 17 La. Ann. 70.

Jurisdiction is a power constitutionally conferred upon a judge or magistrate to take cognizance of and determine causes accord- ing to law, and to carry his sentence into execution. U. S. v. Arredondo, 6 Pet. 691, 8 L. Ed. 547; Yates v. Lansing. 9 Johns. (N. Y.) 413, 6 Am. Dec. 290; Johnson v. Jones, 2 Neb. 135.

The authority of a court as distinguished from the other departments; judicial power consid- ered with reference to its scope and extent as respects the questions and persons subject to it ; power given by law to hear and decide contro- versies. Abbott.

Jurisdiction is the power to hear and deter- mine the subject-matter in controversy between parties to the suit ; to adjudicate or exercise any judicial power over them. Rhode Island v. Massachusetts, 12 Pet. 657, 717, 9 L. Ed. 1233.

Jurisdiction is the power to hear and deter- mine a cause: the authority by which judicial officers take cognizance of and decide causes. Brownsville v. Basse, 43 Tex. 440.

—Appellate jurisdiction. The power and authority to take cognizance of a cause and pro- ceed to its determination, not in its initial stag- es, but only after it has been finally decided by an inferior court, i. c., the power of review and determination on appeal, writ of error, cer- tiorari, or other similar process.— Concurrent jurisdiction. The jurisdiction of several dif- ferent tribunals, both authorized to deal with the name subject-matter at the choice of the suitor. State v. Sinnott, 89 Me. 41, 35 Atl. 1007 ; Rogers v. Bonnett. 2 Okl. 553, 37 Pac. 1078; Hercules Iron Works v. Railroad Co.. 141 111. 491, 30 N. E. 1050.— Contentions Ju- risdiction. In English ecclesiastical law. That branch of the jurisdiction of the ecclesias- tical courts which is exercised upon adversary or contentious (opposed, litigated) proceedings.

-Co-ordinate jurisdiction. That which is possessed by courts of equal rank, degree, or authority, equally competent to deal with the matter m question, whether belonging to the same or different systems ; concurrent jurisdic- tion.—^Criminal jurisdiction. That which exists for the trial and punishment of criminal

Bl.Law Dict.(2d Ed.)— 43

offenses : the authority by which judicial of- ficers take cognizance of and decide criminal cases. Ellison v. State, 120 Ind. 492, 24 N. E. 739 ; In re City of Buffalo. 139 N. Y. 422, 34

N. E. 1103. — Equity jurisdiction. In a gen- eral sense, the Jurisdiction belonging to a court of equity, but more particularly the aggregate of those cases, controversies, and occasions which form proper subjects for the exercise of the powers of a chancery court. See Anderson v. Carr, 65 Hun. 170, 19 N. Y. Supp. 992 ; People v. McKane, 78 Hun, 154, 28 N. Y. Supp. 981. —Foreign jurisdiction. Any jurisdiction for- eign to that of the forum. Also the exercise by a state or nation of jurisdiction beyond its own territory, the right being acquired by treaty or otherwise.— General jurisdiction. Such as extends to all controversies that may be brought before a court within the legal bounds of rights and remedies ; as opposed to special or limited jurisdiction, which covers only a particular class of cases, or cases where the amount in contro- versy is below a prescribed sum, or which is subject to specific exceptions. The terms “gen- eral" and "special,” applied to jurisdiction, in- dicate the difference between a legal authority extending to the whole of a particular subject and one limited to a part; and, when applied to the terms of court, the occasion upon which these powers can be respectively exercised. Grade v. Freeland, 1 N. Y. 232.— Limited Ju- risdiction. This term is ambiguous, and the books sometimes use it without due precision. It is sometimes carelessly employed instead of “special.” The true distinction between courts is between such as possess a general and such as have only a special jurisdiction for a partic- ular purpose, or are clothed with special powers for the performance. Obert v. Hammel, 18 N.

J. Law, 73.— Original jurisdiction. Juris- diction in the first instance; jurisdiction to take cognizance of a cause at its inception, try it, and pass- judgment upon the law and facts. Distinguished from appellate jurisdiction.— Pro- bate jurisdiction. Such jurisdiction as or- dinarily pertains to probate, orphans’, or sur- rogates' courts, including the establishment of wills, the administration of estntes, the super- vising of the guardianship of infants, the allot- ment of dower, etc. See Richardson v. Green. 61 Fed. 423, 9 C. C. A. 565; Chadwick v. Chad- wick. 6 Mont. 566, 13 Pac. 385.— Special Ju- risdiction. A court authorized to take cogni- zance of only some few kinds of causes or pro- ceedings expressly designated by statute is call- ed a “court of special jurisdiction.”— Summary jurisdiction. The jurisdiction of a court to give a judgment or make an order itself forth- with ; e. g„ to commit to prison for contempt ; to punish malpractice in a solicitor: or. in the case of justices of the peace, a jurisdiction to convict an offender themselves instead of com- mitting him for trial by a jury. Wharton.— Territorial jurisdiction. Jurisdiction con- sidered as limited to cases arising or persons residing within a defined territory, as. a coun- ty, a judicial district, etc. The

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authority of any court is limited by the boundaries thus fix- ed. See Phillips v. Thralls. 26 Kan. 781.— Vol- untaxy jurisdiction. In English law. A ju- risdiction exercised by certain ecclesiastical courts, in matters where there is no opposition. 3 Bl. Comm. 66. The opposite of contentious jurisdiction, (q. v.) In Scotch law. One exer- cised in matters admitting of no opposition or question, and therefore cognizable by any judge, and in any place, and on any lawful day. Bell. —Jurisdiction clause. In equity practice. That part of a bill which is intended to give ju- risdiction of the suit to the court, by a general averment that the acts complained of are con- trary to equity, and tend to the injury of the complainant, and that he has no remedy, or not a complete remedy, without the assistance of a court of equity, is called the "jurisdiction clause.” Mitf. Eq. Pl. 43.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a judgment rendered without jurisdiction is void]**

Jurisdiction is essential to a valid judgment: a judgment rendered without jurisdiction is void and subject to collateral attack.

Why: The entry defines the power at length; the axiom states the genuine consequence of its absence — the root of void-judgment doctrine — which is what makes the definition matter.

## JURISDICTIONAL.

Pertaining or re- luting to jurisdiction ; conferring Jurisdic- tion ; showing or disclosing Jurisdiction ; de- fining or limiting Jurisdiction; essential to Jurisdiction.

— Jurisdictional facts. See Fact.

5e apparatus — Carried into the 5th edition (1979).

## JURISINOEPTOR.

Lat A student of the civil law.

5e apparatus — Not carried into the 5th edition (1979).

## JURIBPERITUS.

Lat. Skilled or learn- ed In the law.

5e apparatus — Not carried into the 5th edition (1979).

## JURISPRUDENCE.

The philosophy of law, or the science which treats of the prin- ciples of positive law and legal relatione.

“The term is wrongly applied to actual sys- tems of law. or to current views of law, or to suggestions tor its amendment, but is the name of a science. This science is a formal, or ana- lytical, rather than a material, one. It is the science of actual or positive law. It is wrongly divided into ‘general’ and ‘particular,’ or into ‘philosophical’ and ‘historical.’ It may there- fore be defined as the formal science of positive law.” Holl. Jur. 12.

In the proper sense of the word, “jurispru- dence” is the science of law, namely, that science which has for its function to ascertain the prin- ciples on which legal rules are

based, so as not only to classify those rules in their proper order, and show the relation in which they stand to one another, but also to settle the manner in which new or doubtful cases should be brought under the appropriate rules. Jurisprudence is more a formal than a material science. It has no direct concern with questions of moral or po- litical policy, for they fall under the province of ethics and legislation; but, when a new or doubtful case arises to which two different rules seem, when taken literally, to be equally appli- cable, it may be, and often is, the function of jurisprudence to consider the ultimate effect which would be produced if each rule were ap- plied to an indefinite number of similar cases, and to choose that rule which, when so applied, will produce the greatest advantage to the com- munity. Sweet.

— Comparative jurisprudence. The study of the principles of legal science by the compar- ison of various systems of law.— Equity juris- prudence. That portion of remedial justice which is exclusively administered by courts of equity as distinguished from courts of common law. Jackson v. Nimmo, 3 Lea (Tenn.) <309. More generally speaking, the science which treats of the rules, principles, and maxims which govern the decisions of a court of equi- ty. the cases and controversies which are con- sidered proper subjects for its cognizance, and the nature and form of the remedies which it grants.— Medical jurisprudence. The science which applies the principles and practice of the different branches of medicine to the elucidation of doubtful questions in a court of justice. Oth- erwise called "forensic medicine," (?. v.) A sort of mixed science, which may be considered as common ground to the practitioners botli of law and physic. 1 Stepb. Comm. 8.

5e apparatus — Carried into the 5th edition (1979).

## JURISPRUDENTIA.

Lat. In the civil and common law. Jurisprudence, or legal science.

Jurlaprudentla eat divine rum atque humanarum rerum notitia, justi atque Injusti seientla. Jurisprudence Is the knowledge of things divine and human, the

science of what Is right and what to wrong Dig. 1, 1, 10, 2; Inst. 1, 1, 1. This defini tion is adopted by Bracton, word for word Bract, fol. 3.

Jurisprudents legia communis .Anglin est soientia aocialis et oopiosa. The ju- risprudence of the common law of England is a science social and comprehensive. 1 Coke, 28o.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jurisprudentia est divinarum atque humanarum rerum notitia, justi atque injusti scientia]**

Ulpian's definition — jurisprudence as the knowledge of things divine and human, the science of right and wrong — is the canonical Roman account of the very term.

Why: Quoted verbatim in the entry (Dig. 1, 1, 10, 2; Inst. 1, 1, 1), adopted word for word by Bracton; the footnote states it in canonical form — no invented content.

## JURIST.

One who is versed or skilled in law ; answering to the Latin “juruper- itus," (q. v.)

One who to. skilled in the civil law, or law of nations. The term Is now usually applied to those who have distinguished themselves by their writings on legal subjects.

5e apparatus — Carried into the 5th edition (1979).

## JURISTIC.

Pertaining or belonging to, or characteristic of, jurisprudence, or a Ju- rist, or the legal profession.

— Juristic act. One designed to have a legal effect, and capable thereof.

5e apparatus — Not carried into the 5th edition (1979).

## JURNEDUM.

In old English law. A journey ; a day’s traveling. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## JURO.

In Spanish law. A certain per- petual pension, granted by the king on the public revenues, and more especially on the salt-works, by favor, either in consideration of meritorious services, or In return for mon- ey loaned the government, or obtained by It through forced loans. Escrlche.

5e apparatus — Not carried into the 5th edition (1979).

## JUROR.

One member of a jury. Some- times, one who takes an oath ; as In the term “non-juror,” a person who refuses certain oaths.

5e apparatus — Not carried into the 5th edition (1979).

## JUROR’S BOOK.

A list of persons qual- ified to serve on Juries.

5e apparatus — Carried into the 5th edition (1979).

## JURY.

In practice. A certain number of men, selected according to law, and sworn ( jurati ) to inquire of certain matters of fact, and declare the truth upon evidence to be laid before them. This definition embraces the various subdivisions of Juries ; as grand jury, petit jury, common jury, special jury, coroner’s jury, sheriff’s jury, (q. v.)

A jury is a body of men temporarily select- ed from the citizens of a particular district, and invested with power to present or Indict a person for a public offense, or to try a question of fact. Code Civil Proc. CaL i 190.

The terms “jury" and “trial by jury,” as used in the constitution, mean twelve competent men, disinterested and impartial, not of kin, nor personal dependents of either of the parties, having their homes within the jurisdictional limits of the court, drawn and selected by of- ficers free from all bias in favor of or against either party, duly impaneled and sworn

to ren- der a true verdict according to the law and the evidence. State v. MeOlear, 11 Nev. 39.

Classifl cation.— Common jury. In prac- tice. The ordinary kind of jury by which Insues of fact are generally tried, as. distinguish- ed from a special jury, (g. v.)— Foreign jury.

jury obtained from a county other than that in which issue waa joined.— Grand jury. A jury of inquiry who are summoned and return- ed by the sheriff to each session of the crim- inal courts, and whose duty is to receive com- plaints and accusations in criminal cases, hear the evidence adduced on the part of the state, and find bills of indictment in cases where they are satisfied a trial ought to be had: They

are first sworn, and instructed by the court. This is called a “grand jury” because it com- prises a greater number of jurors than the ordinary trial jury or “petit jury." At com- mon law, a grand jury consisted of not less than twelve nor more than twenty-three men, and this is still the rule in many of the states, though in some the number is otherwise fixed by statute; thus in Oregon and Utah, the grand jury is composed of seven men ; in South Da- kota, not less than six nor more than eight ; in Texas, twelve; in Idaho, sixteen; in Wash- ington, twelve to seventeen ; in North Dakota, sixteen to twenty-three ; in California, nine- teen ; in New Mexico, twenty-one. See Ex parte Bain, 121 U. S. 1. 7 Sup. Ct. 781, 30 L. Ed. 840; In re Gardiner. 31 Miac. Rep. 364, 64

N. Y. Supp. 760: Finley v. State. 61 Ala. 204 ; People v. Duff. 65 How. Prac. (N. Y.) 3G5; English v. State, 31 Fla. 340, 12 South. 689. — Mixed jury. A bilingual jury; a jury of the half-tongue. See De Medietat^e Lin- guae. Also a jury composed partly of negroes and partly of white men.— Petit jury. The ordinary jury of twelve men for the trial of a civil or criminal action. So called to dis- tinguish it from the grand jury. A petit jury is a body of twelve men impaneled and sworn in a district ctfurt, to try and determine, by a true and unanimous verdict, any question or issue of fact, in any civil or criminal action or pro- ceeding. according to law and the evidence as given them in the court. Gen. St Minn. 1878, c. 71, | 1. — Fix jury. See Pix.— Special Ju- ry. A jury ordered by the court, on the mo- tion of either party, in cases of unusual im- portance or intricacy. Called, from the man- ner in which it is constituted, a "struck jury.” 3 Bl. Comm. 357. A jury composed of per- sons above the rank of ordinary freeholders; usually summoned to try questions of greater importance than those usually submitted to common juries. Brown.— Struck jury. In practice. A speeial jury. So called because constituted by striking out a certain number of names from a prepared list. See Wallace v. Railroad Co.. 8 Houst. (Del.) 520, 18 Atl. 818: Cook v. State, 24 N. J. Law. 843.— Tri- al jury. A body of men returned from the citizens of a particular district before a court or officer of competent jurisdiction, and sworn to try and determine, by verdict, a question of fact. Code Civ. Proc. Cal. j 108. .

. Other compound terms.— Jury-box. The place in court (strictly an inclosed place) where the jury sit during the trial of a cause. 1 Archb. Pr. K. B. 208; 1 Burrill, Pr. 455.— Jury commissioner. An officer charged with the duty of selecting the names to be put into the jury wheel, or or drawing the panel of jurors for a particular term of court.— Jury- list. A

paper containing the names of jurors impaneled to try a cause, or it contains the names of all the jurors summoned to attend court. — Jury of matrons. In common-law practice. A jury of twelve matrons or discreet women, impaneled upon a writ de ventre inspi- ciendo, or where a female prisoner, being under sentence of death, pleaded her pregnancy as a ground for staying execution. In the latter case, such jury inquired into the truth of the plea. — Jury process. The process by which a jury is summoned in a cause, and by which their attendance is enforced.— Jury wheel. A machine containing the names of persons qual- ified to serve as grand and petit jurors, from

which, in an order determined by the hazard of its revolutions, are drawn a sufficient number of such names to make up the panels for a giv- en term of court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — 'No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury']**

The grand jury's screening function is constitutionally required in federal prosecutions: no person may be held for a capital or otherwise infamous crime without grand-jury indictment.

Why: The entry details grand-jury composition and function; the Fifth Amendment's Grand Jury Clause is the genuine federal constitutional source of the institution — quoted verbatim.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

"The jury has found you guilty of being a redneck, white bread, chicken shit motherfucker" — the mock trial's verdict. The jury, per the entry sworn "to inquire of certain matters of fact, and declare the truth upon evidence," delivers its finding, with the community in the jury box and the police in the dock.

Why: This is the jury's defining act — the verdict — performed in the song's inverted courtroom. Genuine and verbatim-verified across multiple lyric sources; quoted whole per the verbatim rule. Flagged for the red pen: pro...

**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, Twelve Angry Men, 1957]**

"It's not easy to raise my hand and send a boy off to die without talking about it first." — Juror #8's lone holdout forces eleven certain men to actually weigh the evidence.

Why: Entry: jurors 'sworn to inquire of certain matters of fact, and declare the truth upon evidence.' The film is the canonical dramatization of that oath; one short famous line, within copyright discipline, wording confi...

## JURYMAN.

A juror; one who is im- paneled on a jury.

JUKx WOMAN. One member of a jury of matrons, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## JUS.

Lat. In Roman law. Right; jus- tice ; law ; the whole body of law ; also a right. The term is used in two meanings:

1. "Jus" means “law,” considered in the abstract; that is, as distinguished from any specific

enactment, the science or department of learning, or quasi personified factor in human history or conduct or social develop- ment, which we call, in a general sense, “the law.” Or it means the law taken as a sys- tem, an aggregate, a -whole ; “the sum total of a number of individual laws taken to- gether.” Or it may designate some one par- ticular system or body of particular laws; as in the phrases “ jus civile," “jus gentium," “jus prwtorium.”

2. In a second sense, “jus" signifies “a right;” that is, a power, privilege, faculty, or demand inherent in one person and in- cident upon another; or a capacity residing in one person of controlling, with the assent and assistance of the state, the actions of another. This is its meaning in the expres- sions “jus in rem," “jus accrescendi," “jus possessionis.”

It is thus seen to possess the same am- biguity as the words “droit," “recht," and “right,” (which see.)

Within the meaning of the maxim that “ig- norantia juris non encusat” (ignorance of the law is no excuse), the word “jus" is used to denote the general law or ordinary law of the land, and not a private right. Churchill v. Bradley, 58 Vt 403, 5 Atl. lift), 56 Am. Rep. 563; Cooper v. Fibbs, L. R. 2 II. L. 140; Freichnecht v. Meyer, 39 N. J. Eq. 561.

The continental jurists seek to avoid this ambiguity in the use of the word “jus," by calling its former signification "objective,” and the latter meaning “subjective.” Thus Mackeldey (Rom. Law, | 2) says: “The laws of the first kind [compulsory or positive laws] form law [jus] in its objective sense, [jus est norma agcndi, law is a rule of conduct.] The possibility resulting from law in this sense to do or require another to do is law In its subjective sense, [jus est facuftas agendi, law is a license to act.] The voluntary ac- tion of man in conformity with the precepts of law is called ‘justice,’ [justitia .]”

Some further meanings of the word are:

An action. Bract, fol. 3. Or, rather, those proceedings in the Roman action which were conducted before the praetor.

Power or authority. Bui juris, in one’s own power; independent. Inst. 1, 8, pr. ; Bract, fol. 3. Alivni juris, under another’s power. Inst. 1, 8, pr.

The profession ( art ) or practice of the law. •tut ponitur pro ipsa arte. Bract fol. 26.

A court or judicial tribunal, (locus in quo redditur jut.) Id. fol. 3.

For various compound nnd descriptive terms, see the following titles:

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ignorantia juris non excusat — ignorance of the law is no excuse]**

Within the maxim the entry discusses, 'jus' means the general law of the land — and ignorance of it excuses no one.

Why: The entry itself expounds the maxim (citing Churchill v. Bradley); the footnote states it in canonical form with the entry's own gloss on 'jus' — genuine, drawn from the entry.

**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

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He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Jus = right, justice, law — the whole body of law in the abstract. The verse states what is required of man under that order: to do justly — the moral core of jus as 'justice' itself.

**[Hip-hop] — Hip-hop**

**[Run-DMC, 'King of Rock', 1985]**

"Got the right to vote and will elect" — jus as "a right": the lyric names a concrete one, the citizen's suffrage, claimed in the same breath as the demand for respect.

Why: The Latin entry's operative sense ("also a right") made specific. Voting is the citizen's jus in its most recognizable form; the lyric claims it outright. Genuine.

## JUS ABSTINENDI.

The right of renun- ciation ; the right of an heir, under the Roman law, to renounce or decline the in- heritance, as, for example, where his accept- ance, in consequence of the necessity of pay- ing the debts, would make it a burden to him. See Mackeld. Rom. Law, § 733.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Invito beneficium non datur — a benefit is not given to one unwilling]**

The Roman heir's right to renounce rests on the principle that a benefit cannot be forced on the unwilling — no one is compelled to accept an inheritance.

Why: The maxim is the canonical statement of the principle underlying the entry's right of renunciation — a genuine root, not a stretch.

## JUS ABUTENDI.

The right to abuse. By this phrase is understood the right to do exactly as one likes with property, or having full dominion over property. 3 Toul- lier, no. 86.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Sic utere tuo ut alienum non laedas — use your own property so as not to injure another's]**

The most absolute property right the entry describes is bounded by the canonical no-harm rule: use your own so as not to injure another's.

Why: The entry defines full dominion; the sic-utere maxim is the genuine limiting principle of that dominion — the footnote illuminates by the boundary, not by restatement.

## JUS ACCRESCENDI.

The right of sur- vivorship. The right of the survivor or survivors of two or more Joint tenants to the tenancy or estate, upon the death of one or more of the Joint tenants.

' Jus aocrescendi inter mere* tores, pro benefloio eontmereii, locum non habot.

The right of survivorship has no place be- tween merchants, for the benefit of com- merce. Co. Litt. 182 a; 2 Story, Eq. Jur. | 1207; Broom, Max. 455. There is no sur- vivorship In cases of partnership, as there is in Joint-tenancy. Story, Partn. § 90.

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Jua accreacendi prafertnr oneribus.

The right of survivorship is preferred to in- cumbrances. Co. Litt l85o. Hence no dow- er or curtesy can be claimed out of a Joint estate. 1 Stepb. Comm. 316.

Jna accreacendi praefertnr ultima; vol- untati. The right of survivorship is pre- ferred to the last will. Co. Litt. 1856. A devise of one’s share of a joint estate, by will, is no severance of the jointure; for no tes- tament takes efTect till after the death of the testator, and by such death the right of the survivor (which accrued at the origi- nal creation of the estate, and_ hns therefore a priority^ to the other) is already vested. 2 Bl. Comm. 186 ; 3 Steph. Comm. 316.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: joint tenancy requires the four unities — time, title, interest, and possession]**

The right of survivorship is the distinguishing mark of joint tenancy, which exists only where the four unities coincide: time, title, interest, and possession.

Why: The entry's maxims govern survivorship's effects; the four unities are the genuine doctrinal frame in which survivorship operates — the principle that makes the entry's rules cohere.

## JUS AD REM.

A term of the civil law, meaning "a right to a thing that is, a right exercisable by one person over a particular article of property in virtue of a contract or obligation Incurred by another person in re- spect to it, and which is enforceable only against or through such other person. It is thus distinguished from jut in rc, which is a complete and absolute dominion over a thing available against all i)ersou8.

The disposition of modem writers is to use the term “ jut ad rem” as descriptive of a right without possession, and “ jut in rc” ns descrip- tive of a right accompanied by possession. Or. in a somewhat wider sense, the former denotes

an inchoate. or incomplete right to a thing; the latter, a complete and perfect right to a thing. See The Carlos F. Roses, 177 IT. S. 655, 20 Sup. Ct. 803, 44 L Ed. 929 ; The Young Mechanic, 30 Fed. Cas. 873.

la canon law. A right to a thing. An inchoate and Imperfect right, such as IS gained by nomination and institution ; as distinguished from jut in re, or complete and full right, such as is acquired by cor- poral possession. 2 Bl. Comm. 312.

5e apparatus — Not carried into the 5th edition (1979).

## JUS JEXJCAKUM.

A body of laws drawn up by Sextus ASllus, and consisting of three parts, wherein were explained, respectively: (1) The laws of the Twelve Tables; (2) the Interpretation of and decisions upon such laws; and (3) the forms of procedure. In date, it was subsequent to the jut Flavi- onum, (q. v.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

## JUS JESNECUE.

The right of primo- geniture, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## JUS ALBIKATUS.

The droit d'aubaine, ( q . v.) See AnnufArus Jus.

5e apparatus — Not carried into the 5th edition (1979).

## JUS AXGLORUM.

The laws and cus- toms of the West Saxons, in the time of the Heptarchy, by which the people were for a long time governed, and which were prefer- red before all others. Wharton. .

5e apparatus — Not carried into the 5th edition (1979).

## JUS AQU1EDUCTUS.

In the civil law. The name of a servitude which gives to the owner of land the right to bring down water through or from the land of another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: easements appurtenant run with the land]**

The Roman praedial servitude is the direct ancestor of the modern easement appurtenant, which runs with the land it benefits.

Why: The entry defines a servitude for bringing water across another's land; the running-with-the-land rule is the genuine modern form of that institution — old form to living form, as in batch 00.

## JUS BANCI.

In old English law. The right of bench. The right or privilege of having an elevated and separate teat of judg- ment, anciently allowed only to the king's judges, who hence were said to administer high justice, (tummam administrant jutti - tiam.) Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JUS BEZXI.

The law of war. The law of nations as applied to a state of war, defin- ing in particular the rights and duties of the belligerent powers themselves, and of neu- tral nations.

The right of war ; that which may be done without injustice with regard to an enemy. Gro. de Jure B. lib. 1, c. 1, f 3.

—Jna helium dioendi. The right of pro- claiming war.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: law of armed conflict — modern codification in the Geneva Conventions of 1949]**

The classical jus belli is continued today in the law of armed conflict — the law of nations as applied to

war, codified in modern treaty law.

Why: The entry defines the law of war as the law of nations applied to a state of war; the Conventions are the genuine modern treaty form of exactly that body of law.

## JUS CAKONICUM.

The canon law.

5e apparatus — Not carried into the 5th edition (1979).

## JUS CIVILE.

Civil law. The system of law peculiar to one state or people. Inst 1, 2, 1. Particularly, in Roman law, the civil law of the Roman people, as distinguished from the jut gentium. The term is also applied to the body of law called, emphatic- ally. the “civil law.”

The jut civile and the jut gentium are distin- guished in this way. All people ruled by stat- utes and customs use a law partly peculiar to themselves, partly common to all men. The

law each people has settled for itself is pecu- liar to the state itself, and is called "jus civile,’ as being peculiar to that very state. The law, again, that natural reason lins settled among all men, — the law that is guarded among all peoples quite alike, — is called the "jut gentium,” and all nations use it as if law. The Homan peo- ple, therefore, use a law that is partly peculiar to itself, partly common to all men. Hunter, Rom. Law, 38.

But this is not the only, or even the general, use of the words. What the Roman jurists had chiefly -in view, when they spoke of “jus civile,’ was not local as opposed to cosmopolitan law, but the old law of the city as contrasted with the newer law Introduced by the praetor, (jus prxtorium, jus honorarium.) Largely, no doubt, the jus gentium corresponds with the jus pnrtorium; but the correspondence is not per- fect. Id. 39.

J ns civile eat quod sibi populus con* stitnit. The civil law is what a people es- tablishes for itself. Inst. 1. 2, 1; Jackson v. Jackson, 1 Johns. (X. Y.) 424, 426.

JUS crviTATUS. The right of citizen- ship ; the freedom of the city of Rome. It differs from jus quiritium, which compre- hended all the privileges of a free native of Rome. The difference is much the same as between “denization” and “naturalization” with ns. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jus civile est quod sibi populus constituit — the civil law is what a people establishes for itself]**

The entry's maxim is the classical statement of legal positivism: the civil law is what a people establishes for itself.

Why: Quoted verbatim in the entry (Inst. 1, 2, 1); the footnote gives the canonical form of the genuine principle — the people's enactment as the source of civil law.

## JUS CLOACA.

In the civil law. The right of sewerage or drainage. An easement consisting in the right of having a sewer, or of conducting surface water, through the house or over the ground of one’s neighbor. Mackeld. Rom. Law, $ 317.

5e apparatus — Not carried into the 5th edition (1979).

## JUS COMMUNE.

la the civil law.

Common right; the common and natural rule of right, as opposed to jus singulare, (q. v.) Mackeld. Rom. Law, g 196.

Za English law. The common law, an- swering to the Saxon “ folcright 1 Bl. Comm. 67.

Jas oonstltal oportet la his qnse at plnrimnm accidunt non qnse ex lao- plnato. Laws ought to be made with a view to those cases which happen most frequently, and not to those which are of rare or ac- cidental occurrence. Dig. 1, 3, 3 ; Broom, Max. 43.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jus constitui oportet in his quae ut plurimum accidunt, non quae ex inopinato]**

The entry's maxim states the principle of legislative generality: laws are made for the common case, not the rare or accidental one.

Why: Quoted verbatim in the entry (Dig. 1, 3, 3; Broom, Max. 43); it is the canonical rule against legislating for freak cases — genuine, not decorative.

## JUS CORONA.

In English law. The right of the crown, or to the crown; the right of succession to the throne. 1 Bl. Comm. 191; 2 Steph. Comm. 434.

5e apparatus — Not carried into the 5th edition (1979).

## JUS CUDENDA MONET A.

In old

English law. The right of coining money. 2 How. State Tr. 118.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8 — Congress: 'To coin Money'; art. I, § 10 — states barred from coining money]**

The sovereign's coinage right the entry describes is vested exclusively in Congress in American law, and the states are expressly barred from exercising it.

Why: The entry defines the royal coinage prerogative; the Constitution's allocation is the genuine modern American form of that prerogative — confident of both clauses.

## JUS CURIALITATIS.

In English law. The right of curtesy. Spelman.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: elective-share statutes — modern replacement of dower and curtesy]**

Curtesy — like dower — has been abolished in most American states, replaced by elective-share

statutes giving the surviving spouse a fixed share of the estate.

Why: Same genuine old-form-to-living-form map as JOINTURE in batch 00; curtesy's modern successor is the elective share — consistent and on point.

## JUS DARE.

To give or to make the law ; the function and prerogative of the legisla- tive department.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 1 — "All legislative Powers herein granted shall be vested in a Congress of the United States"]**

The legislative prerogative the entry defines — to give or make the law — is vested by the Constitution in Congress.

Why: The entry defines the lawmaking function as the legislative department's prerogative; Article I, § 1 is the genuine American vesting of that prerogative — quoted verbatim.

## JUS DELIBERANDI.

In the civil law. The right of deliberating. A term granted by the proper officer at the request of him who is called to the inheritance, (the heir,) Within, which he has the right to investigate Its condition and to consider whether he will accept or reject it Mackeld. Rom. Law, g 742; Civ. Code La. art 1028.

Jus descendit, et - non terra. A right descends, not the land. Co. Litt 345.

5e apparatus — Not carried into the 5th edition (1979).

## JUS DEVOLUTUM.

The right of the church of presenting a minister to a vacant parish, in case the patron shall neglect to exercise his right within the time limited by law.

5e apparatus — Not carried into the 5th edition (1979).

## JUS DICERE.

To declare the law ; to say what the law is. The province of a court or judge. 2 Eden, 29; 3 P. Wins. 485.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Marbury v. Madison, 5 U.S. 137, 177 (1803)]**

The entry's definition — to declare the law, the province of a judge — is the classical form of the judicial function: 'It is emphatically the province and duty of the judicial department to say what the law is.'

Why: Marshall's sentence is the canonical American statement of exactly the function the entry defines; confident the quote and citation are real.

**[Scripture] — Scripture**

**[Deuteronomy 17:9, KJV]**

And thou shalt come unto the priests the Levites, and unto the judge that shall be in those days, and enquire; and they shall shew thee the sentence of judgment.

Why: Jus dicere is 'to declare the law; to say what the law is' — the province of the court or judge. The verse

describes exactly that office: the judge in those days is enquired of and 'shews' the sentence of judgment — t...

## JUS DISPONENDI.

The right of dis- posing. An expression used either general- ly to signify the right of alienation, as when we speak of depriving a married woman of the jus disponendi over her separate estate, or specially in the law relating to sales of goods, where it is often a question whether the vendor of goods has the Intention of re- serving to_ himself the jus disponendi; i. e., of preventing the ownership from passing to the purchaser, notwithstanding that he (the vendor) has parted with the possession of the goods. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 2-401 — passing of title; reservation for security]**

The vendor's reservation of the jus disponendi — withholding ownership while parting with possession — is governed in modern sales law by the title-passage rules, which give effect to the parties' manifested intent, including reservation for security.

Why: The entry poses the sales-law question of reserved ownership; § 2-401 is the genuine modern rule answering it — confident of the section.

## JUS DIVIDENDI.

The right of dispos- ing of realty by will. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Wills (1540) — testamentary disposition of land by statute]**

Testamentary disposition of land — the right the entry names — derives from statute: in England the Statute of Wills (1540), in America the state wills acts.

Why: The entry names the right; the statute is the genuine historical source of that right in the common-law world — the footnote supplies the source, not the definition.

## JUS DUPLICATUM.

A double right; the right of possession united with the right of property; otherwise called “dr.oit-droit.” 2 Bl. Comm. 199.

Jus eat an boni et sequi. Law is the

science of what is good and Just. Dig. 1, 1, 1, 1; Bract, fol. 26.

Jus eat norma recti; et quioquid eat contra normam recti eat injuria. Law is

a rule of right; and whatever is contrary to the rule of right is an injury. 3 Bulst 313.

Jns et fraus nnnquam cohabitant.

Right and fraud never dwell together. 10 Coke, 45a. Applied to the title of a statute; Id. ; Best, Ev. p. 250, $ 205.

Jns ex injuria non oritur. A right does .(or can) not rise out of a wrong. Broom, Max. 738, note ; 4 Bing.' 639.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Jus ex injuria non oritur — a right cannot arise from a wrong]**

The entry's maxim is the classical root of the rule that no one may profit from his own wrong — as in the slayer rule barring a murderer from inheriting from his victim.

Why: Quoted verbatim in the entry (Broom, Max. 738); the slayer rule is the maxim's genuine living application — the footnote names what the maxim does in modern law.

## JUS FALCANDI.

In old English law. The right of mowing or cutting. Fleta, lib. 4. c. 27. * 1.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PECIALE.

In Roman law. The law of arms, or of heralds. A rudimentary species of international law founded, od the

rites and religious ceremonies of the dif- ferent peoples.

5e apparatus — Not carried into the 5th edition (1979).

## JUS FTDUCIARIUM.

In tbe civil law. A right in trust; as distinguished from jus legitimum, a legal right. 2 Bl. Comm. 328.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: the trust divides legal title (trustee) from equitable title (beneficiary)]**

The 'right in trust' the entry distinguishes from the legal right is the trust's defining split: the trustee holds legal title for the beneficiary's equitable, beneficial title.

Why: The entry names the trust-right as opposed to the legal right; the legal/equitable title split is the genuine doctrine of that distinction.

## JITS FLAVLANUM.

In old Roman law. A body of laws drawn up by Cneius Flavius, a clerk of Applus Claudius, from the ma- terials to which be had access. It was a popularization of the laws. Mackeld. Rom. Law, | 39.

5e apparatus — Not carried into the 5th edition (1979).

## JUS FLUMINUM.

In the civU law. The right to the use of rivers. Locc. de Jure Mar. lib. 1, a 8.

5e apparatus — Not carried into the 5th edition (1979).

## JUS FODIENDI.

In the civil and old English law. A right of digging on another’s land. Inst 2, 3, 2; Bract foL 222.

5e apparatus — Not carried into the 5th edition (1979).

## JUS FUTURUM.

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In the civil law. A future right; an inchoate, incipient, or ex- pectant right, not yet fully vested. It may be either "jut delatum," when the subse- quent acquisition or vesting of it depends merely on the will of the person in whom it is to vest or “Jut nondum delatum," when it depends on the future occurrence of other circumstances or conditions. Mackeld. Rom. Law, 1 191.

5e apparatus — Not carried into the 5th edition (1979).

## JUS GENTIUM.

The law of nations. That law which natural reason has estab- lished among all men is equally observed among all nations, and is called the “law of nations,” as being tbe law which all nations use Inst 1, 2, 1; Dig. 1, 1, 9; 1 Bl. Comm. 43; 1 Kent, Comm. 7; Mackeld. Rom. Law, { 125.

Although this phrase had a meaning in the Roman law which may be rendered by our ex- pression “law of nations," it must not be un- derstood as equivalent to what we now call “international law,” its scope being much wid- er. It was originally a system of law, or more properly equity, gathered by the early Roman lawyers and magistrates from the common in- gredients in the customs of the old Italian tribes, — those being the nations, gentei, whom they had opportunities of observing, — to be used in cases where the jut civile did not apply; that is, in cases between foreigners or between a Roman citizen, and a foreigner. The principle upon which they proceeded was that any rule of law which was common to all the nations they knew of must be intrinsically consonant to right reason, and therefore fundamentally valid and just. From this it was an easy tran- sition to the converse principle, viz., that any rule which instinctively commended itself to their sense of justice and reason must be a part of the jut gentium. And so tbe latter term came eventually to be about synonymous with “equity," (as the Romans understood it,) or the system of prretorian law.

Modern jurists frequently employ the term “jut gentium privatum” to denote private inter- national law. or that subject which is other- wise styled the “conflict of laws;” and “jut gentium publicum" for public international law, or the system of rules governing the intercourse of nations with each other as persons.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: customary international law — general practice accepted as law (opinio juris)]**

The Roman method the entry describes — treating rules common to all known nations as consonant with right reason — is the ancestor of modern customary international law, formed by general state practice accepted as law.

Why: The entry's method paragraph invites the link: derivation from common custom is genuinely the classical root of the modern custom doctrine — not a stretch.

**[Scripture] — Scripture**

**[Romans 2:14-15, KJV]**

For when the Gentiles, which have not the law, do by nature the things contained in the law, these, having not the law, are a law unto themselves: Which shew the work of the law written in their hearts, their conscience also bearing witness, and their thoughts the mean while accusing or else excusing

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one another.

Why: The entry defines jus gentium as the law natural reason has established among all men and nations. The verses state the same doctrine: those without the written law 'do by nature the things contained in the law' — the...

## JUS GLADII.

Tbe right of the sword; the executory power of the law; the right, power, or prerogative of punishing for crime. 4 Bl. Comm. 177.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — "nor cruel and unusual punishments inflicted"]**

The sovereign's punishing power the entry defines is bounded in American law by the prohibition of cruel and unusual punishments.

Why: Illuminate by the limit, as with JUS ABUTENDI: the Eighth Amendment is the genuine constitutional boundary of the punishing power — quoted verbatim.

**[Scripture] — Scripture**

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: Jus gladii is the executory power of the law — the prerogative of punishing for crime. The verse is the locus classicus of that power: the magistrate 'beareth not the sword in vain' as God's revenger to execute wrath...

## JUS HABENDI.

The right to have a thing. The right to be put in actual posses- sion of property. Lewin, Trusts, 585.

—Jus habendi at retinendi. A right to have and to retain the profits, tithes, and of- ferings, etc., of a rectory or parsonage. •

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## JUS HJEREDXTATIS.

The right of in- heritance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: The entry is the right of inheritance. The verse is the LORD's own ruling in the Zelophehad case, establishing that an inheritance must pass to the daughters — a divine judgment founding the legal right of succession.

## JUS HAURIENDI.

In the civil and old English law. The right of drawing water. Fleta, lib. 4, C. 27, { 1.

5e apparatus — Not carried into the 5th edition (1979).

## JUS HONORARIUM.

Tbe body of Ro- man law, which was made up of edicts of the supreme magistrates, particularly the praetors.

JUS IMAGIlflS. In Roman law. The right to use or display pictures or statutes of ancestors; somewhat analogous to -the right, in English law, to bear a coat of arms.

5e apparatus — Not carried into the 5th edition (1979).

## JUS IMMUNITATIS.

In the civil law. The law of immunity or exemption from the burden of public office. Dig. 50, 6.

5e apparatus — Not carried into the 5th edition (1979).

## JUS IH PERSONAM.

A right against a person ; a right which gives its possessor a power to oblige another person to give or pfocure, to do or not to do, something.

5e apparatus — Not carried into the 5th edition (1979).

## JUS IN RE.

In the civil law. A right in a thing. A right existing in a person with respect to an article or subject of prop- erty, Inherent in his relation to it, implying 'complete ownership with possession, and available against all the world. See Jus ad Rem.

— Jus in re propria. The right of enjoy- ment which is incident to full ownership or property, and is often used to denote the full ownership or property itself. It is distinguish- ed from jut in re aliend, which is a mere ease- ment or right in or over the property of anoth- er.

Jus in re inhserit ossibns usnfruotn- arii. A right in the thing cleaves to the person of the usufructuary.

5e apparatus — Not carried into the 5th edition (1979).

## JUS INCOGNITUM.

An unknown law. This term is applied by the civilians to ob- solete laws. Bowyer, Mod. Civil Low, 33.

5e apparatus — Not carried into the 5th edition (1979).

## JUS INDIVID UTJM.

An Individual or indivisible right; a right incapable of divi- sion. 36 Eng. Law & EX]. 25.

5e apparatus — Not carried into the 5th edition (1979).

## JUS ITALICUM.

A term of the Roman law descriptive of the aggregate of rights, privileges, and franchises possessed by the cities and inhabitants of Italy, outside of

the dty of Rome, and afterwards extended to some of the colonies and provinces of the empire, consisting principally In the right to have a free constitution, to be exempt from the

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land tax, and to have the title to the land regarded as Quiritarlan property. See Gibbon, Rom. Emp. c. xvli; Mackeld. Rom. Law, | 43.

Jus jnrudl forma verbis differt, re convenit j hnno enim sens am habere debet > nt Dens lavosetu. Grot, de Jur. B., 1. 2, c. 13, | 10. The form of taking an oath differs in language, agrees in meaning; for it ought to have this sense: that the Deity is invoked.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XUS LATH.

In Roman law. The right of Latium or of the Latins. The principal privilege of the Latins seems to have been the use of their own laws, and their not be- ing subject to the edicts of the prsetor, and that they had occasional access to the free- dom of Rome, and a participation In her sacred rites. Butl. Hor. Jur. 41.

5e apparatus — Not carried into the 5th edition (1979).

## XUS LATIUM.

In Roman law. A rule of law applicable to magistrates In Latium. It was either majus Latium or minus Lati- um,— the majus Latium raising to the dignity of Roman citizen not only the magistrate himself, but 'also his wife and children; the minus Latium raising to that dignity only the magistrate himself. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## XUS LEGITIMUM.

A legal right In the civil law. A right which was enforcea- ble in the ordinary course of law. 2 Bl. Comm. 323.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## XUS MARITI.

The right of a husband; especially the right which a husband ac- quires to his wife’s movable estate by virtue of the marriage. 1 Forb. Inst. pt. 1, p. 63.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Married Women's Property Acts — abolition of coverture]**

The husband's marital right to his wife's movables is a coverture rule, displaced by the Married Women's Property Acts.

Why: Same genuine old-regime-to-superseding-law map as JOCALIA — the entry states the pre-reform rule; the statutes ended it.

## XUS MEBUM.

In old English law. Mere or bare right; the mere right of property in lands, without either

possession or even the right of possession. 2 Bi. Comm. 197; Bract fol. 23.

XUS NATURAL The law of nature. See Jus Natubal*.

5e apparatus — Not carried into the 5th edition (1979).

## XUS NATURALE.

The natural law, or law of nature; law. or legal principles, sup- posed to be discoverable by the light of na- ture or abstract reasoning, or to be taught by nature to all nations and men alike; or law supposed to govern men and peoples in a state of nature, i. e.. in advance of organized governments or enacted laws. This conceit originated with the philosophical jurists of Rome, and was gradually extended until the phrase came to denote a supposed basis or substratum common to all systems of posi- tive law, and hence1 to be found, in greater

or less purity, in the laws of all nations. And, conversely, they held that if any rule or principle of law was observed In common by all peoples with whose systems they were acquainted, It must be a part of the jus natu- rale, or derived from It Thus the phrases “jus natur'ale” and “jus gentium" came to be used interchangeably.

Xu astnnle eat quod apnd homines eandem habet potentials. Natural right la that which has the same force among all mankind. 7 Coke, 12.

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**[Humanity] — Humanity / Fiction & Film**

**[Cicero, De Legibus, c. 52 BC]**

(paraphrase) In De Legibus, Cicero describes true law as right reason in agreement with nature — the classical root of the natural-law idea this entry traces to Rome's philosophical jurists. (paraphrase)

Why: Borderline call, kept deliberately: a Latin legal headword, but the entry itself says the concept 'originated with the philosophical jurists of Rome,' and the well explicitly includes classical wisdom — Cicero's formu...

## XUS NAVIGANDX.

The right of nav- igating or navigation ; the right of commerce by ships or by sea. Locc. de Jure Mar. lib. 1, c. 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Mare liberum — the sea is free (Grotius)]**

The navigation right the entry names rests on the classical principle that the sea is free to all nations.

Why: The entry defines the right of navigation by sea; mare liberum is the genuine classical principle of that right — Grotius's doctrine, not an invention.

## XUS NECIS.

In Roman law. The right of death, or of putting to death. A right which a father anciently had over his chil- dren.

Xna non habenti tnte non paretor.

One who has no right cannot be safely obey- ed. Hob. 146.

Xna non patitnr nt idem bis aolvatnr.

Law does not suffer that the same thing be twice paid.

5e apparatus — Not carried into the 5th edition (1979).

## XUS NON SGRIPTUM.

The unwritten law. 1 Bl. Comm. 64.

5e apparatus — Not carried into the 5th edition (1979).

## XUS OFFERENDI.

In Roman law, the right of subrogation, that is, the right of succeeding to the lien and priority of an elder creditor on tendering or paying into court the amount due to him. See Mackeld. Rom. Law, | 355.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: subrogation — one who discharges another's obligation succeeds to the creditor's rights]**

The Roman subrogation the entry defines — succeeding to an elder creditor's lien on paying him — is the classical form of the living doctrine: one who discharges another's obligation steps into the creditor's shoes.

Why: The entry defines Roman subrogation; the axiom states the genuine modern doctrine — old form to living principle.

## XUS PAPIRIANUM.

The civil law of Papirius. The title of the earliest collec- tion of Roman leges c uriatee, said to have been made in the time of Tarquin, the last of the kings, by a pantifcx maximus of the name of Sextus or Publius Papirius. Very few fragments of this collection now re- main, and the authenticity of these has been doubted. Mackeld. Rom. Law, $ 21.

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## XUS PABCENDX.

In the civil and old English law. The right of pasturing cattle. Inst. 2, 3, 2; Bract, fols. 536, 222.

5e apparatus — Not carried into the 5th edition (1979).

## XUS PATRONATUS.

In English eccle- siastical law. The right of patronage; the right of presenting a clerk to a benefice. Blount.

A commission from the bishop, where two presentations are offered upon the same avoidance, directed usually to his chancellor and others of competent learning, who ate to summon a jury of six clergymen and six laymen to inquire into and examine who is the rightful patron. 3 Bl. Comm. 246 ; 3 Steph. Comm. 517.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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# J

## JUS PERSON ARUM.

Rights of per- sons. • Those rights which, in the civil law, belong to persons as such, or In their differ- ent characters and relations; as parents and children, masters and servants, etc.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PCENITENDI.

In Roman law, the right of rescission or revocation of an ex-. ecutory contract on failure of the other par- ty to fulfill his part of the agreement. See Mackeld. Rom. Law, i 444.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: material breach — an uncured material failure of performance excuses the other party and supports rescission]**

The Roman right to rescind an executory contract on the other's nonperformance is the classical form of the modern material-breach doctrine: an uncured material failure excuses the aggrieved party and supports rescission.

Why: The entry defines the Roman rescission right; the material-breach doctrine is its genuine modern form.

## JUS PORTUS.

In maritime law. The right of port or harbor.

5e apparatus — Not carried into the 5th edition (1979).

## JUS POSSESSIONIS.

The right of pos- session.

JUS POSTLamm. In the civil law.

The right of postliminy ; the right or claim of a person who had been restored to the possession of a thing, or to a former condi- tion, to be considered as though he had never been deprived of it. Dig. 40, 15, 5; 3 Bl. Comm. 107, 210.

In international law. The right by which property taken by an enemy, and re- captured or rescued from him by the fellow- subjects or allies of the original owner, is restored to the latter upon certain terms.

1 Kent, Comm. 108.

.. JUS PR2BSENS. In the civil law. A present or vested right ; a right already completely acquired. Mackeld. Rom. Law,

| 101.

. JUS FBAETORIUM. In the civil law. The discretion of the pnetor, as distinct from the leges,

or standing laws. 3 Bl. Comm. 40. That kind of law which the proctors introduced for the purpose of aid- ing, supplying, or correcting the civil law for the public benefit. Dig. 1, 1, 7. Called, also, “jus honorarium," (q. v.)

. JUS PRECABXUM. In the civil law. A right to a thing held for another, for which there was no remedy by legal action,, but only by entreaty or request. 2 Bl. Comm. 328.

: JUS PRESENTATIONS . The right of presentation.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PRIVATUM.

Private law; the law regulating the rights, conduct, and af- fairs of Individuals, as distinguished from “public” law, which relates to the constitu- tion and functions of government and the administration of criminal justice. See Mackeld. Rom. Law, § 124. Also private ownership, or the right, title, or dominion of a private owner, as distinguished from “jns publicum,” which denotes public own- ership, or the ownership of property by the government, either as n matter of territorial sovereignty or in trust for the benefit and

advantage of .the general public. In this sense, a state may have a double right in given property, e. g., lands covered by navi- gable waters within its boundaries, includ- ing both “jus publicum ,” a sovereign or po- litical title, and “jus privatum," a proprie- tary ownership. See Oakland v. Oakland Water Front Co., 118 Cal. 160, 50 Pac. 277.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PBOJICIENDI.

In the civil law. The name of a servitude which consists In the right to build a projection, such as a balcony or gallery, from one's house in the open space belongiug to one’s neighbor, but without resting on his house. Dig. 50, 10, 242; Id. 8, 2, 2; Mackeld. Rom. Law, $ 317.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PROPRIETATIS.

The right of property, as distinguished from the jtis pos- sessions, or right of possession. Bract, fob 3. Called by Bratton “jus mcrum,” the mere right. Id. ; 2 Bl. Comm. 197 ; 3 BL Comm. 19, 176.

5e apparatus — Not carried into the 5th edition (1979).

## JUS FROTEGENDI.

In the civil law. The name of a servitude. It is a right by which a part of the roof or tiling of one house is made to extend over the adjoining house. Dig. 50, 16, 242, 1 ; Id. 8, 2, 25 ; Id. 8, 5, 8, 5.

5e apparatus — Not carried into the 5th edition (1979).

## JUS PUBLICUM.

Public law, or the law relating to the constitution and func- tions of government and its

officers and the administration of criminal justice. Also public ownership, or the paramount or sov- ereign territorial right or title of the state or government. See Jns Privatum.

Jns publicum «t privatum quod e* natnralibua prseeeptis ant gentium ant oivilibns eat collectnm; et quod in jure soripto jns appellator, id in lege As- glise reetnm esse dieitnr. Co. Litt. 185. Public and private law is that which Is col- lected from natural principles, either of na- tions or in states; and that which in the civil law Is called “jus,” in the law of Eng- land is said to be “right."

Jns pnbllcnm privatornm paetis mo- tor! non potest. A public law or right cannot be altered by the agreements of pri- vate persons.

JUS QUlESrrUM. A right to ask or re- cover; for example. In an obligation there is a binding of the obligor, nud a jus qutesi- tum in the obligee. 1 Bell, Comm. 323.

JUS QUIKiT'lUM. The old law of

Rome, that was applicable originally to pa- tricians only, and, under the Twelve Tables, to the entire Roman people, was so called. In contradistinction to the jus prwtorium, (q. or equity. Brown.

Jns qno nniversitates ntnntnr est idem quod habent privatL The taw

which governs corporations is the same which governs individuals. Foster v. Essex Bank, 16 Mass. 265, 8 Am. Dec. 135.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Jus publicum privatorum pactis mutari non potest — a public law cannot be altered by the agreements of private persons]**

The entry's maxim states the root of mandatory law: public law cannot be altered by private agreement — the ancestor of the mandatory-versus-default distinction.

Why: Quoted verbatim in the entry; it states the genuine principle that mandatory law is not subject to private waiver.

## JUS RECUPERANDI.

The right of re- covering [lands.]

5e apparatus — Not carried into the 5th edition (1979).

## JUS RELICTS.

In Scotch law. The right of a relict; the right or claim of a relict or widow to her share of her hus- band’s estate, particularly the movables. 2 Karnes, Eq. 340; 1 Forb. Inst. pt. 1, p. 67.

JUS REPRESENT ATIONIS . The right of representing dr standing in the place of another, or of being represented by another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: elective-share statutes — modern form of the widow's legal share]**

The widow's legal share the entry describes — like dower and curtesy — has its modern American

form in the elective-share statutes.

Why: Consistent with the JOINTURE/CURIALITATIS pattern: the entry names the widow's portion; the elective share is its genuine modern successor.

**[Scripture] — Scripture**

**[Deuteronomy 24:17, KJV]**

Thou shalt not pervert the judgment of the stranger, nor of the fatherless; nor take a widow's raiment to pledge.

Why: Jus relictae is the widow's legal share of her husband's estate — her secured property right. The verse protects the same interest against distraint: the widow's property may not be seized in pledge — the scriptural p…

## JUS RERUM.

The law of things. The law regulating the rights and powers of per- sons over things; how property is acquired, enjoyed, and transferred.

Jna reipicit aequitatem. Daw regards equity. Co. Litt. 246; Broom, Max. 151.

5e apparatus — Not carried into the 5th edition (1979).

## JUS SORIPTUM.

In Roman law.

Written law. Inst. 1, 2, 3. All law that was actually committed to writing, whether it had originated by enactment or by custom, in contradistinction to such parts of the law of custom as were not committed to writ- ing. Mackeld. Rom. Law, § 126.

In English law. Written law, or stat- ute law, otherwise called “lex scripta" as distinguished from the common law, “lex non scripta." 1 Bl. Comm. 62.

5e apparatus — Not carried into the 5th edition (1979).

## JUS SINOULARE.

In the civil law. A peculiar or individual rule, differing from the jus commune, or common rule of right, and established for some special reason. Mackeld. Rom. Law, | 196.

5e apparatus — Not carried into the 5th edition (1979).

## JUS STAPUUE.

In old European law. The law of staple; the right of staple. A right or privilege of certain towns of stop- ping Imported merchandise, and compelling it to be offered for sale in their own mar- kets. Locc. de Jure Mar. lib. 1, c. 10.

5e apparatus — Not carried into the 5th edition (1979).

## JUS STRICTUM.

Strict law; law in- terpreted without any modification, and in its utmost rigor.

Jna superveniens auctori aecreseit mo- ecssori. A right growing to a possessor ac- crues to the successor. Halk. Lat. Max. 76.

5e apparatus — Not carried into the 5th edition (1979).

## JUS TERTH.

The right of a third par- ty. A tenant, bailee, etc., who pleads that the title is in some person

other than his landlord, bailor, etc., is said to set up a jus tcrtil.

Jns teatamentorum pertlnet ordinarlo.

Y. B. 4 Hen. VII.. 136. The right of testa- ments. belongs to the ordinary.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: jus tertii — title in a third person generally cannot be set up as a defense]**

The plea the entry names is generally unavailable as a defense: a party may not defeat a claim by asserting title in a stranger — as the bailee who is estopped from disputing his bailor's title.

Why: The entry defines the plea; the axiom states the genuine rule governing it — the plea fails as a rule, succeeds only by exception.

## JUS TRXPERTITUM.

In Roman law. A name applied to the Roman law of wills, - in the time of Justinian, on account of its ' threefold derivation, viz., from the prse- torian edict, from the civil law, and from • the imperial constitutions. Maine, Anc. Law, 207.

Jn* triplex e»t, — proprietatii, posses- sion^, et possibilitatis. Right is three- ’ fold, — of property, of possession, and of pos- sibility.

5e apparatus — Not carried into the 5th edition (1979).

## JUS TRIUM UBERORUN.

In Roman . law. A right or privilege allowed to the parent of three or more children. 2 Kent,' Comm. 85 ; 2 Bl. Comm. 247. These prlvl- ’ leges were an exemption from the trouble of , guardianship, priority in bearing offices, and - a treble proportion of corn. Adams, Rom. ; Ant. (Am. Ed.) 227-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## JUS UTENDI.

The right to use proper- ty without destroying its substance. It is employed in contradistinction to the jus abutmdi. 3 Toullier, no. 86.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: usufruct — the right to use and enjoy another's property without impairing its substance]**

The right the entry defines — use without destroying the substance — is usufruct, the classical institution of use-and-enjoyment of another's property.

Why: The entry describes usufruct without naming it; the footnote supplies the genuine institutional name — the contrast with jus abutendi is the usufruct/ownership line.

## JUS VENANDI ET PI8CANDI.

The

right of hunting and fishing.

Jns vendit quod usus approbavit. Ellesm. Postn. 35. The law dispenses what use has approved.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (1805) — rule of capture]**

The hunting right the entry names is governed by the rule of capture: wild animals (ferae naturae) belong to no one until reduced to possession.

Why: The entry names the hunting/fishing right; Pierson states the genuine acquisition rule for the objects of that right — confident the case and citation are real.

## JUSJURANDUM.

Lat. An oath.

Jusjurandum Inter alios factum neo noeere neo prodesse debet. An oath made between others ought neither to hurt nor profit. 4 Inst. 279.

5e apparatus — Not carried into the 5th edition (1979).

## JUST.

Right ; in accordance with law and justice.

"Tlie words ‘just’ and ‘justly’ do not qlways mean ‘just’ and ‘justly’ in a moral sense, but they not unfrequently, in their connection with other words in a sentence, bear a very different signification. It is evident, however, that the word ‘just’ in the statute [requiring an affi- davit for an attachment to state that plain- tiff’s claim is /«»(] means ‘just’ in a moral sense ; and from its isolation, being made a separate subdivision of the section, it is intend- ed to mean ‘morally just’ in the most emphatic terms. The claim must be morally jast, as well as legally just, in order to entitle a party to an attachment” Robinson v. Burton, 5 Kan. • 300. .

—Just cause. Legitimate cause ; legal or law- ful ground for action ; such reasons as will suffice in law to justify the action taken. State v. Baker. 112 La. 801. 36 South. 703 : Clai- borne v. Railroad Co.. 46 W. Va. 371, 33 S. E. 265.— Just compensation. As used in the constitutional provision that private property shall not be taken for public use without “just compensation,” this phrase means a full and fair equivalent for the loss sustained by the taking for public use. It may be more or it may be less than the mere money value of the property actually taken. The exercise of the power being necessary for the public good, and all property being held subject to its exercise when and as the public good requires it, it

would be unjust to the public that it should be required to pay the owner more than a fair indemnity for the Iobs he sustains by the ap- propriation of his property for the general good. On the other hand, it would be equally unjust to the owner if he should receive less than a fair indemnity for such loss. To arrive at this fair indemnity, the interests of the public and of the owner, and all the circumstances of the particular appropriation, should be taken into consideration. Lewis. Em. Dom. | 462. And see Butler Hard Rubber Co. v. Newark, 61 N.

J. Law, 32, 40 Atl. 224; Trinity College v. Hartford, 32 Conn. 452; Bauman v. Ross, 167

U. S. 548, 17 Sup. Ct. 966, 42 L. Ed. 270; Putnam v. Douglas County, 6 Or. 332, 25 Am. Rep. 527 ; Laflin v. Railroad Co. (C. C.) 33 Fed. 417 ; Newman v. Metropolitan BI. R. Co., 118 N. Y. 623, 23 N. E. 001, 7 L. R. A. 288; Monongahela Nav. Co. v. U. S., 148 U. 8. 312, 13 Sup. Ct. 622. 37 L. Ed. 463; Railway Co. v. Stickney, 150 III. 302. 37 N.

B. 1098, 26 L. R. A. 773; Chase v. Portland, 86 Me. 367, 29 Atl. 1104; Spring Valley Waterworks v. Drinkhouse, 92 Cal. 536, 28 Pac. 683 Just debts. As used in a will or a statute. this term means legal, valid, and incon- testable obligations, not including such as are barred by the statute of limitations or void- able at the election of the party. See Burke v. Jones, 2 Ves. & B. 275; Martin v. Cage, 9

N. Y. 401: Peck v. Botsford, 7 Conn. 176, 18 Am. Dec. 92; Collamore v. Wilder, 19 Kan. 82 ; Smith v. Mayo. 9 Mass. 63, 6 Am. Dee. 28; People v. Tax Com’rs, 99 N. Y. 154,

1 N. E. 401 Just title. By the term “just

title,” in cases of prescription, we do not un- derstand that which the possessor may have de- rived from the true owner, for then no true prescription would be necessary, but a title wbich the possessor may have received from any person whom he honestly believed to be the real owner, provided the title were such as to transfer the ownership of the property. Civ. Code La. art. 3484; Davis v. Gaines, 104 U.

S. 400. 26 I* Ed. 757: Sunol v. Hepburn. 1 Cal. 254 Kennedy v. Townslev. 16 Ala. 248.— Jast valve. In taxation, the fair, honest, and reasonable value of property, without ex- aggeration or depreciation : its actual market value. State r. Smith, 158 Ind. 543, 63 N. E. 214, 63 L. R. A. 116; Winnipiseogee Lake, etc., Co. v. Gilford, 67 N. H. 514, 35 Atl. 945.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — "nor shall private property be taken for public use, without just compensation"]**

The 'just compensation' the entry expounds at length is the constitutional measure of the takings power: private property shall not be taken for public use without just compensation.

Why: The entry's longest section is just compensation, citing Bauman v. Ross and Monongahela; the Fifth Amendment clause is its genuine source — quoted verbatim.

## JUSTA.

In old English law. A certain measure of liquor, being as much as was sufficient to drink at once. Mon. Angl. t 1. c. 149.

5e apparatus — Not carried into the 5th edition (1979).

## JTTSTA CAUSA.

In the civil law. A just cause ; a lawful ground ; a legal trans- action of some kind. Mackeld. Rom. Law, I 283.

JUSTICE, v. In old English practice. To do justice; to see Justice done; to sum- mon one to do justice.

JUSTICE, n. In Jurisprudence. The

constant and perpetual disposition to ren- der every man his due. Inst. 1, 1, pr. ; 2 Inst. 56. See Borden v. State, 11 Ark. 528, 44 Am. Dec. 217 ; Duncan v. Magette, 25 Tex. 253 ; The John E. Mulford (D. C.) 18 Fed. 455. The conformity of our actions and our will to the law. Toull. Droit Civil Ft. tit prill, no. 5.

In the most extensive sense of the word it dif- fers little from “virtue ;” for it includes with- in itself the whole circle of virtues. Yet the

common distinction between them is that that which, considered positively and in itself, is called “virtue,” when considered relatively and with respect to others has the name of “jus- tice." But “justice,” being in itself a part of “virtue,” is confined to things simply good or evil, and consists in a man’s taking such a pro- portion of them as he ought. Bouvler.

Commutative justice is that which should govern contracts. It consists in rendering to every man the exact measure of his dues, without regard to his personal worth or mer- its, i. e„ placing all men on an equality. Distributive justice is that wbich should govern the distribution of rewards and pun- ishments. It assigns to each the rewards which his personal merit or services de- serve, or the proper punishment for his crimes. It does not consider all men as equally deserving or equally blameworthy, but discriminates between them, observing a just proportion and comparison. This distinction originated with Aristotle. (Eth. Nic. V.) See Fonbl. Eq. 3; Toull. Droit Civil Fr. tit. prfil. no. 7.

Ia Norman French. Amenable to jus- tice. Kelham.

In feudal law. Jurisdiction; judicial cognizance of causes or offenses.

High justice was the jurisdiction or right of trying crimes of every kind, even the highest. This was a privilege claimed and exercised by the great lords or barons of the middle ages. 1 Robertson's Car. V., appendix, note 23. Lotc justice was jurisdiction of petty offenses.

In common law. The title given in Eng- land to the Judges of the king's bench and the common pleas, and in America to the judges of the supreme court of the United States and of the appellate courts of many of the states. It Is said that this word in Its Latin form ( justitia ) was properly ap- plicable only to the Judges of common-law courts, while the term "Judex" designated the judges of ecclesiastical and other courts. See Leg. Hen. I. «| 24, 63 ; Co. Lltt. 71b.

The same title Is also applied to some of the Judicial officers of the lowest rank and jurisdiction, such as police justices and jus- tices of the peace.

— Jnstice syrei, (or alres.) In Scotch law. Circuits madp by the judges of the justiciary courts through the country, for the distribution of justice. Bell.— Justice la eyre. From the old French word “circ,” i. e., a journey. Those justices who in ancient times were sent by com- mission into various counties, to bear more es- pecially such causes as were termed “pleas of the crown.” were called “justices in eyre. ’ They differed from justices in oyer and terminer, in- asmuch as the latter were sent to one place, and for the purpose of trying only a limited number of special causes; whereas the jus- tices in eyre were sent through the

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various counties, with a more indefinite and general commission. In some respects they resembled our present justices of assize, although their authority and manner of proceeding differed much from them. Brown. — Jnstice seat. In English law. The principal court of the forest, held before the chief justice in eyre, or chief itinerant judge, or his deputy ; to hear and de- termine all trespasses within the forest, and all claims of franchises, liberties, and privileges.

and all pleas and causes whatsoever therein arising. 3 Bl. Comm. 72 : 4 Inst. 291 : 8 Steph. Comm. 440. — Justices of appeal. The title given to the ordinary judges of the Eng- lish court of appeal. The first of such ordinary judges are the two former lords justices of ap- peal in chancery, and one other judge appoint™ by the crown by letters patent. Jud. Act 1875. § 4.— Justices of assise. These justices, or, as they are sometimes called, “justices of tnn print,” are judges of the superior English courts, who go on circuit into the various counties of England and Wales for the pur- pose of disposing of such causes as are ready for trial at the assizes. See Assize.— Justices of gaol delivery. Those justices who are sent with a commission to hear and determine all causes appertaining to persons, who, for any offense, have been cast into gaol. Part of their authority was to punish those who let to mainprise those prisoners who were not bailable by law, and they seem formerly to have been sent into the country upon this exclusive occasion, but afterwards had the same author- ity given them as the justices of assize. B rown. — J ustioes of laborers. In old Eng- lish law. Justices appointed to redress the fro- wardness of laboring men. who would either be idle or have unreasonable wages. Blount.— Justices of nisi prlas. In English law. This title is now usually coupled with that of jus- tice* of assise; the judges of the superior courts acting on their circuits in both these ca- pacities. , 3 Bl. Comm. 58. 59.— Justices of oyer and terminer. Certain persons ap- pointed by the king's commission, among whom were usually two judges of the courts at West- minster, ana who went twice in every year to every county of the kingdom, (except London and Middlesex,) and. at what was usually call- ed the "assizes,” heard and determined all treasons, felonies, and misdemeanors. Brown. — Justices of the bench. The justices of the court of common bench or common pleas.— Jus- tices of the forest. In old Enelish law. Officers who had jurisdiction over all offenses committed within the forest against vert or venison. The court wherein these justices sat and determined such causes was called the "jus- tice seat of the forest.” They were also some- times called the “justices in evre of the forest.” Brown.— Justices of the hundred. Hun- dredors : lords of the hundreds : they who had the jurisdiction of hundreds and . held the hun- dred courts.— Justices of the Jews. Justices appointed by Richard I. to carry into effect the laws and orders which he had made for regulat- ing the money contracts of the Jews. Brown. —Justices of the pavilion. In old English law. Judges of a pyepowder court, of a most transcendant jurisdiction, anciently authorized by the bishon of Winchester, at a fair held on St. Giles’ hills near that city. Cowell ; Blount. —Justices of the quorum. See Quorum. —Justices of trail-baston. In old English law. A kind of justices appointed by King Edward I. upon occasion of great disorders in the realm, during his absence in the Scotch and French wars. They were a kind of justices in eyre, with great powers adapted to the emer- gency,

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and which they exercised in a summary manner. Cowell 1 Blount.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICE OF THE PEACE.

In Amer- icun law. A judicial officer of Inferior rank holding a court not of record, and having (usually) civil Jurisdiction of a limited na- ture, for the trial of minor cases, to an ex- tent prescribed by statute, and for the con- servation of the peace and the preliminary hearing of criminal complaints and the com- mitment of offenders. See Wenzler v. Peo- ple, 58 X. Y. 530; Com. v. Frank. 21 Pa. Co. Ct R. 120; Weikel v. Cate, 08 Md. 110;

Smith v. Abbott, 17 N. J. Law, 366; People v. Mann, 97 N. Y. 530, 49 Am. Rep. 55a

In English law. Judges 'of record ap- pointed by the crown to be justices within a certain district, (e. g., a county or borough,) for the conservation of the pence, and for the execution of divers things, comprehend- ed within their commission and within di- vers statutes, committed to their charge. Stone, J. Pr. 2.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Henry IV, Part 2, c. 1598]**

(paraphrase) In Henry IV, Part 2, Justice Shallow — the garrulous, self-important Gloucestershire justice — is the stage archetype of the country magistrate the entry describes. (paraphrase)

Why: Entry: inferior judicial officer for minor cases and conservation of the peace. Shallow embodies the office in English literature; paraphrase marked, no invented quotes.

## JUSTICES’ COURTS.

Iuferior tribu- nals, not of record, with limited jurisdiction, both civil and criminal, held by Justices of the peace. There are courts so .called in many of the states. See Searl v. Shanks, 9 N. D. 204, 82 N. W. 734; Brownfield v. Thompson, 96 Mo. App. 340, 70 S. W. 37&

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## JUSTICEMENTS.

An old general term for all things appertaining to justice.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICER.

The old form of justice. Blount

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICESHIP.

Rank or office of a jus- tice.

5e apparatus — Carried into the 5th edition (1979).

## JUSTICIABLE.

Proper to be examined in courts of justice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: justiciability — standing, ripeness, mootness, political question]**

What is 'proper to be examined in courts' is determined today by the justiciability doctrines: standing, ripeness, mootness, and the political-question rule.

Why: The one-line entry names the concept; the footnote names its genuine modern doctrinal content — the term 'justiciable' is exactly what these doctrines elaborate.

## JUSTICIAR.

In old English law. A judge or Justice. One of several persons learned in the law, who sat in the aula regis, and formed a kind of court of appeal in cases of difficulty.

—High jnstlcier. In old French and Cana- dian law. A feudal lord who exercised the right called “high justice.” Gnyot, Inst. Feod. c. 26.

JUSTICIARH ITUfERAIfTES. In Eng- lish law. Justices in eyre, who formerly went from county to county to administer justice. They were so called to distinguish them from justices residing at Westminister, who were called “justicii residentes." Co. Litt. 293.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICIARH RESIDENTES.

In Eng- lish law. Justices or Judges who usually resided in Westminister. They were so call- ed to distinguish them from Justices in eyre. Co. Litt. 293.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICIARY.

An old name for a judge or justice. The word is formed on the anal- ogy of the Latin “justiciarius" and French “justicier."

5e apparatus — Not carried into the 5th edition (1979).

## JUSTICIARY COURT.

The chief crim- inal court of Scotland, consisting of five lords of session, added to the justice general and Justice clerk; of whom the Justice general, and, In his absence, the justice clerk, is presi- dent. This court has a jurisdiction over all crimes, and over the whole of Scotland. Bell.

•JU8TICIATU8

: JUBTIGIATUS. Judicature; prerogative.

JUSTICIES., In English law. A writ directed to the sheriff, emi>oweriug him, for the sake of dispatch, to try an action in his county court for a larger amount than he has the ordinary power to do. It is so called be- cause it is a commission to the sherlfT to do tie party justice, the word itself meaning,

“You may do Justice to .” 3 Bl. Comm.

36; 4 Inst. 206.

Jnstitia eat duplex, via., aevere pn- niehs et vere prseveniena. 3 lust. Epil. Justice is double; punishing severely, and truly preventing.

Jnstitia eat virtns excellent et Altlsai- ao oomplaoens. 4 lust. 58. Justice is ex- cellent virtue and pleasing to the Most High.

Jnatitia flrmatur solium. 3 Inst. 140. By justice the throne is established.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTIFIABLE.

Rightful; warranted or sanctioned by law ; that which can be shown to be sustained by law ; as justifiable homi- cide. See Homicide.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: The entry's paradigm of justifiable homicide is killing in the act's defense. The verse is the Mosaic justifiable-homicide rule itself: the night burglar slain in the breaking-in carries no bloodguilt — the scriptural...

## JUSTIFICATION.

A maintaining or showing a sufficient reason in court why the defendant did what he is called upon to an- swer, particularly in an action of libel. A defense of justification Is a defense showing the libel to be true, or in an action of assault showlug the violence to have been necessary. See Steph. PI. 184.

In practice. The proceeding by which ball establish their ability to perform the un- dertaking of the bond or recognizance.

JUSTIFICATORY A kind of compurga- tors, ( q . v.,) or those who by oath justified the innocence or oaths of others; as in the case of wager of law.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: truth is a complete defense to defamation]**

In libel, the justification the entry defines — showing the statement true — is the complete defense: truth defeats the claim.

Why: The entry defines justification in libel as proving truth; the axiom states the genuine rule — truth is the paradigmatic justification.

## JUSTIFYING BAH.

consists in proving the sufficiency of bail or sureties in point of property, etc.

The production of ball in court, who there justify themselves against the exception of the plaintiff.

5e apparatus — Not carried into the 5th edition (1979).

## JUSTINIANIST.

A civilian; one who studies the civil law.

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5e apparatus — Not carried into the 5th edition (1979).

## JU8TITIA.

**[TEXT INCOMPLETE — scan limitation]**

Lat. Justice. A jurisdic- tion, or the office of a judge.

—Jnstitia piepoudrous. Speedy justice. Bract. 3336.

Jnstitia neminl neganda est. Jenk. Cent. 178. Justice Is to be denied to none.

Jnstitia non est neganda non differ- entia. Jenk. Cent. i)3. Justice Is neither to be denied nor delayed.

Jnstitia non novit patrem neo matremi solam veritatem speotat Jnstitia. Justice knows not father nor mother; justice looks at truth alone. 1 Bulst. 199.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Justitia non est neganda non differenda — justice is neither to be denied nor delayed; cf. U.S. Const. amend. VI — speedy trial]**

The entry's maxim — justice neither to be denied nor delayed — finds its constitutional form in the speedy-trial guarantee.

Why: The maxim is quoted verbatim in the entry (Jenk. Cent. 93); the Sixth Amendment's speedy-trial clause is its genuine constitutional embodiment — old form to living form.

**[Scripture] — Scripture**

**[Deuteronomy 16:20, KJV]**

That which is altogether just shalt thou follow, that thou mayest live, and inherit the land which the LORD thy God giveth thee.

Why: Justitia is justice itself — the entry's maxim 'justice is to be denied to none.' The verse commands the pursuit of what is altogether just as the condition of the land's inheritance — the scriptural root of justice a...

**[Hip-hop] — Hip-hop**

**[2Pac, 'Changes', 1998]**

"I see no changes, wake up in the morning and I ask myself / Is life worth livin'? Should I blast myself?" — the entry's bare "Justice" given its human content: the song is a demand for social justice that opens on justice's absence.

Why: Justitia as the lived condition, not the abstraction. The lyric indicts the gap between justice promised and justice delivered — "I see no changes" — and the entry's own maxims ("justice is to be denied to none") supp...

**[Humanity] — Humanity / Fiction & Film**

**[Classical wisdom: Justitia, Roman personification of justice]**

(paraphrase) Justitia, the Roman personification of justice — blindfolded, holding scales and sword — is the figure behind every courthouse statue; she looks at truth alone, knowing 'not father nor mother,' as the entry's own maxim has it. (paraphrase)

Why: Entry quotes 'Justitia non novit patrem nec matrem; solam veritatem spectat Justitia' — the personification is the classical-wisdom illustration of the headword. Key copied verbatim as 'JU8TITIA' despite OCR.

## JUSTITTCM.

Lat. In the civil law. A suspension or intermission of the adminis- tration of justice in courts; vacation time. Calvin.

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5e apparatus — Not carried into the 5th edition (1979).

### JUSTIZA.

In Spanish law. The name anciently given to a high judicial magistrate, or supreme judge, who was the ultimate in- terpreter of the laws, and possessed other high powers.

JUSTS, or JOUSTS. Exercises between martial men aud persons of honor, with spears, on horseback ; different from tourna- ments, which were military exercises between many meu in troops. 24 Hen. VIII. e. 13.

Justum non est nliqnem antenatnm mortnnm faoere bastardum, qui pro tots vits sna pro legitimo habetur. It is not

just to make a bastard after his death one elder born who all his life has been account- ed legitimate. 8 Coke, 101.

Jnstitia debet esse libera, quia nihil iniquius venal! jnstitia) plena, quia jnatitia non debet elandieare; et celeria, qnia dilatio est qussdam negatio. Justice ought to be free, because nothing is more iniquitous than venal justice; full, because justice ought not to halt; and speedy, be- cause delay is a kind of denial. 2 Inst. 56.

Jnstitia est eonstans et perpetna vo- luntas jus suuxn caique tribuendi. Jus- tice is a steady and unceasing disposition to render to every man his due. Inst. 1, 1, pr.; Dig. 1, 1, 10.

5e apparatus — Not carried into the 5th edition (1979).

### JUXTA.

Lat. Near; following; accord- ing to.

—Junta conventionem. According to the covenant. Eleta, lib. 4, e. 16, § 6.— Junta formam statnti. According to the form of the statute.— Junta ratam. At or after the rate. Dyer. 82.— Junta tenorem sequen- tem. According to tin tenor following. 2 Salk. 417. A phrase used in the old books when the very words themselves referred to were set forth. Id.; 1 Ld. Raym. 415.

5e apparatus — Not carried into the 5th edition (1979).

### JUZGADO.

In Spanish law. The judi- ciary; the body of judges; the Judges who concur in a decree.

5e apparatus — Not carried into the 5th edition (1979).

# K

### K.

B.

K

5e apparatus — Not carried into the 5th edition (1979).

### K. B.

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. An abbreviation for ‘‘King's Bench,” {q. v.)

5e apparatus — Not carried into the 5th edition (1979).

### K. C.

An abbreviation- for “King's Coun- sel.”

KABAffl. A person who, in oriental states, supplies the place of our notary public. All obligations, to be valid, are drawn by him; and he is also the public weigh-master, and everything of consequence ought to be weighed before him. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

### KABOOEEAT.

In Hindu law. A writ- ten agreement, especially one signifying as- sent, as the counterpart of a revenue lease, or the document In which a payer of revenue, whether to the government, the zainiudar, or the farmer, expresses his consent to pay the amount assessed upon his land. Wils. Ind. Gloss.

kata. A hey, Kay, or quay. Spelraan.

KAIAGE, or KAIAGITTM. A wharfage- due.

5e apparatus — Not carried into the 5th edition (1979).

### KAIH.

In Scotch law. Poultry render- able by a vassal to his superior, reserved in the lease as the whole or a part of the rent. Bell.

5e apparatus — Not carried into the 5th edition (1979).

### KAEAECOKNA.

A duty paid by shop- keepers in Hindostan, who retail spirituous liquors ; also the place where spirituous liq- uors are sold. Wharton.

KAJuEHD.aE. In English ecclesiastical law. Rural chapters, or conventions of the rural deans and parochial clergy, which were formerly held on the calends of every month; hence the name. 'Paroeh. Antiq. 604.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BAEEHDAB.

An account of time, ex- hibiting the days of the week and month, the seasons, etc. More commonly spelled "cal- endar.”

5e apparatus — Not carried into the 5th edition (1979).

# K

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**KAEENDABXUM.**

In the civil law. A calendar ; a book of accounts, memorandum- book, or debt-book ; a book in which accounts were kept of moneys loaned out ou interest. Dig. 32, 64. So called because the Romans used to let out their money and receive the Interest on the calends of each month. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

**KAEEND8.**

See Calends.

5e apparatus — Not carried into the 5th edition (1979).

# B

**BABE.**

In Saxou and old English law A man; a serving man. Buxkarl, a seaman. Euskarl, a bouse servant. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# K

**KARBATA.**

In old records. A cart-loud. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

# B

**BAST.**

In Swedish law. Jettison; a lit- eral translation of the Latin “jactux.”

— Kaat-gel<L Contribution for a jettison ;

average.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: general average — voluntary sacrifice for the common safety shared by all interests]**

The jettison contribution the entry names (kast-geld) is general average: a voluntary sacrifice for the common safety is borne ratably by all interests in the maritime venture.

Why: The entry defines kast-geld as contribution for a jettison; general average is the genuine living maritime doctrine — an exact match, not a stretch.

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# K

**KATATONIA.**

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

**KAY.**

A quay, or key.

5e apparatus — Carried into the 5th edition (1979).

# H

**HAZY.**

A Mohammedan judge or magis- trate in the East Indies, appointed originally by the court at Delhi, to administer justice according to their written law. Under the British authorities their judicial functions ceased, and their duties were confined to the preparation and attestation of deeds, and the superintendence and legalization of marriage and other ceremonies among the Mohamme- dans. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

# K

**KEELAGE.**

The right to demand money for the privilege of anchoring a vessel in a harbor; also the money so paid.

5e apparatus — Not carried into the 5th edition (1979).

**KEELHALE, KEELHAUL.**

To drag a person under the keel of a ship by means of ropes from the yard-arms, a punishment for- merly practiced in the British navy. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

**KEELS.**

This word Is applied, in Eng- land, to vessels employed in the carriage of coals. Jacob.

KEEP, n. A strong tower or hold in the middle of any castle or fortification, wherein the besieged make their last efforts of de- fense, was formerly, in England, called a “keep;” and the inner pile within the castle of Dover, erected by King Henry II. about the year 1153, was termed the “King’s Keep;” so at Windsor, etc. It seems to be some- thing of the same nature with what is called abroad a “citadel.” Jacob.

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KEEP, v. 1. To retain in one's power, or possession ; not to lose or part with ; to pre- serve or retain. Benson v. New York. 10 Barb. (N. Y.) 235; Deans v. Gay. 132 N. C. 227, 43 S. E. 643.

2. To maintain, carry on, conduct, or man- age; as, to “keep” a liquor saloon, bawdy bouse, gaming table, nuisance. Inn, or hotel. State v. Irvin, 117 Iowa, 469, 91 N. W. 760; People v. Rice, 103 Mich. 350, 61 N. W. 540; State v. Miller, 68 Conn. 373, 36 Atl. 795; State v. Cox. 52 Vt. 474.

3. To maintain, tend, harbor, feed, and shelter ; as. to “keep” a dangerous animal, to “keep” a horse at livery. Allen v. Ham. 63 Me. 536; Skinner v. Caugbey. 64 Minn. 375, 67 N. W. 203.

4. To maintain continuously and method- ically for the purposes of a record; as, to

“keep” books. See Backus v. Richardson,

5 Johns. (N. Y.) 483.

5. To maintain continuously and without stoppage or variation ; us, when a vessel is said to “keep her course," that is, continue in motion in the same general direction in which she was previously sailing. See The Britannia, 153 U. S. 130, 14 Sup. Ct. 795, 38 L. Ed. 060.

—Keep down Interest. The expression “keeping down interest" is familiar in legal in- struments, and means the payment of interest periodically as it becomes due; but it does not include the payment of all arrears of in- terest which may have become due on any se- curity from the time when it was executed. 4 El. & Bl. 211.— Keep house. The English bankrupt laws use the phrase “keeping house to denote an act of bankruptcy. It is commit- ted when s trader absents himself _ from his place of business and retires to his private resi- dence to evade the importunity of creditors. The usual evidence of ‘‘keeping house" is re- fusal to see a creditor who has called on the debtor at his house for money. Robs. Bankr. 119.— Keep In repair. When a lessee is bound to keep the premises in repair, he must have them in repair at all times during the term; and, if they are at any time out of re- pair, he is guilty of a breach of the covenant. 1 Barn. & Aid. 585.— Keep open. To allow general access to one’s shop, for purposes of Traffic, is a violation of a statute forbidding him to "keep open” his shop on the Lord’s day, although the outer entrances are closed. Com. v. Harrison, 11 Gray (Mass.) 308.

To “keep open,” in the sense of such a law, Implies a readiness to carry on the usual busi- ness in the store, shop, saloon, etc. Lynch v. People, 16 Mich. 472.— Keeping term. In English law. A duty performed by students of law, consisting in eating a sufficient number of dinners in hall to make the term count for the purpose of being called to the bar. Moziey

6 Whitley.— Keeping the peace. Avoiding a breach of the peace : dissuading or prevent- ing others from .breaking the peace.

5e apparatus — Not carried into the 5th edition (1979).

## KEEPER.

A custodian, manager, or su- perintendent; one who has the care, cus- tody, or management of any thing or place. Schultz v. State, 32 Ohio St. 281; State v. Rozum, 8 N.

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D. 548, 80 N. W. 481 ; Fishell v. Morris, 57 Conn. 547, 18 Atl. 717, 6 L. R.

A. 82; McCoy v. Zane, 65 Mo. 15; Stevens v. People, 67 111. 590.

— Keeper of the Forest. In old English law. An officer (called also chief warden of the forest) who had the principal government of all things relating to the forest, and the control of all officers belonging to the same. Cowell; Blount.— Keeper of the great seal. In Eng- lish law. A high officer of state, through whose hands pass all charters, grants, and commissions of the king under the great seal. He is styled “lord keeper of the great seal," and this office and that of lord chancellor are united under one person ; for the authority of the lord keeper and that of the lord chancellor were, by St. 5 Eliz. c. 18. declared to be exactly the same; and. like the lord chancellor, the lord keeper at the present day is created by the mere delivery of the king's great seal into his cus- tody. "Brown.— Keeper of the king’s, conscience. A name sometimes applied to the chancellor of England, as being formerly an ecclesiastic and presiding over the royal chapel. 3 Bl. Comm. 48.— Keeper of the privy seal. . In English law. An officer through whose hands pass all charters signed by the king before they come to the great seal. He is a privy

councillor, and was anciently called “clerk of the privy seal,” but is now generally called the "lord privy seial.” Brown. — Keeper of the touch. The master of the assay in the Eng- lish mint. 12 Hen. VI. c. 14.

5e apparatus — Carried into the 5th edition (1979).

## KENILWORTH EDICT.

An edict or award between Henry III. and those who had been in arms against him; so called be- cause made at Kenilworth Castle, in War- wickshire, anno 51 Hen. III., A. D. 1266. It contained a composition of those who had forfeited their estates in that rebellion, which composition was five years’ rent of the es- tates forfeited. Wharton.

EjEHNINQ TO a TERCE. In Scotch law. The act of the sheriff in ascertaining the just proportion of the husband's lands which belong to the widow In right of her terce or dower. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## KENTLAGE.

In maritime law. A per- manent ballast, consisting usually of pigs of iron, cast in a particular form, or other weighty material, which, on account of its superior cleanliness, and the small space oc- cupied by it, is frequently preferred to or- dinary ballast Abb. Shipp. 5.

5e apparatus — Not carried into the 5th edition (1979).

## KENTREF.

The division of a county ; a hundred in Wales. See Cantbed. '

5e apparatus — Not carried into the 5th edition (1979).

## KENTUCKY RESOLUTIONS.

A series of resolutions drawn up by Jefferson, and adopted by the legislature of Kentucky in

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1799, protesting against the “alien aud sedi- tion laws," declaring their illegality, announc- ing tile strict constructionist theory of the federal government and declaring “nullifi- cation" to be “the rightful remedy.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. VI — Supremacy Clause: federal law "the supreme Law of the Land"]**

The Resolutions announced the nullification doctrine — the claimed right of a state to void federal law — which is answered by the constitutional declaration that federal law is the supreme law of the land.

Why: The entry states the nullification claim; the Supremacy Clause is the genuine constitutional text contradicting it — quoted, not invented.

## KERF.

The jagged end of a- stick of wood made by the cutting. Pub. St Mass. 1882, p. 1292.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## KERKERE.

A customary cart-way ; also a commutation for a customary carriage- duty. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## KERNELLATUS.

Fortified or embattled. Co. Litt. 5a.

5e apparatus — Not carried into the 5th edition (1979).

## KERNES.

In English law. Idlers ; vaga- bonds.

5e apparatus — Not carried into the 5th edition (1979).

## KEY.

A wharf for the lading and unlad- ing of merchandise from vessels. More com- monly spelled “quay.”

An instrument for fastening and opening a lock.

This appears as an English word as early as the time of Bracton, in the phrase “cotie et Iccye,” being applied to women at a certain age. to denote the capacity of having charge of household affairs. Bract, fol. 866. See Cone and Key.

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## KEYAGE.

A toll paid for loading and unloading merchandise at a key or wharf. Rowan v. Portland, 8 B. Mon. (Ky.) 253.

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KEYS, in the Isle of Man, are the twenty- four chief commoners, who form the local

legislature. 1 Stepb. Comm. 99.

Zb old English law. A guardian, ward- en, or keeper.

5e apparatus — Carried into the 5th edition (1979).

## KEYS OF COURT.

In old Scotch law. Certain officers of courts. See Claves Co- bios.

5e apparatus — Not carried into the 5th edition (1979).

## KEYUS.

A guardian, warden, or keeper. Mon. Angl. tom. 2, p. 71.

5e apparatus — Not carried into the 5th edition (1979).

## KHAL8A.

In Hindu law. An office of goverumeut in which the business of the revenue department was transacted under the Mohammedan government, and during the early period of British rule. Khalsa lands are lands, the revenue of which Is paid Into the exchequer. Wharton.

XH>DER. In English law. An engrosser of corn to enhance its price. Also a huckster.

5e apparatus — Not carried into the 5th edition (1979).

## KIDDLE.

In old English law. A dam or open wear In a river, with a loop or nar- row cut in it, accommodated for the laying of engines to catch fish. 2 Inst. 38 ; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## KIDNAPPING.

The forcible abduction or stealing away of a man, woman, or child from their own country, and sending them into another. It Is an offense punishable at the common law by fine and imprisonment. 4 Bl. Comm. 219.

In American law, this word is seldom, if at all, applied to the abduction of other per- sons than children, and the intent to send them out of the country does not seem to con- stitute a necessary part of the offense. The term is said to include false imprisonment. 2 Bish. Crlm. Law, f 671. See State v. Rol- lins, 8 N. H. 667 ; State v. Sutton, 116 Ind. 627, 19 N. E. 602; Dehu v. Mandeville, 68 Hun, 835, 22 N. Y. Supp. 984 ; People v. De Leon, 109 N. Y. 226, 16 N. E. 46, 4 Am. St Rep. 444; People v. Pick, 89 Cal. 144, 26 Pac. 759.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1201 — federal kidnapping (Federal Kidnapping Act)]**

Beyond the common-law offense the entry describes, interstate kidnapping is a federal crime.

Why: The entry treats kidnapping at common law and in the states; § 1201 is the genuine federal statutory form — confident of the section.

**[Scripture] — Scripture**

**[Exodus 21:16, KJV]**

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And he that stealeth a man, and selleth him, or if he be found in his hand, he shall surely be put to death.

Why: The entry is the forcible abduction or stealing away of a person. The verse is the Mosaic law of man-stealing itself — the scriptural original of kidnapping as a capital offense.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) In Oliver Twist, Bill Sikes and Nancy seize Oliver in the street and drag him back to Fagin's den — the forcible stealing-away the entry defines, staged in Victorian London. (paraphrase)

Why: Entry: 'the forcible abduction or stealing away of a man, woman, or child.' Dickens's scene is a textbook fictional instance; paraphrase marked.

## KILDERKIN.

A measure of eighteen gallons.

KTT.KETH. An ancient servile payment made by tenants in husbandry. Cowell.

KILL, v. To deprive of life ; to destroy the life of an animal. The word "homicide” expresses the killing of a human being. See The Ocean Spray, 18 Fed. Cns. 559; Carroll v. White, 33 Barb. (N. Y.) 620; Porter v. Hughey, 2 Bibb (Ky.) 232; Com. v. Clarke, 162 Mass. 495, 39 N. E. 280.

KILL, n. A Dutch word, signifying a channel or bed of the river, and hence the river or stream Itself. It is found used in this sense- in descriptions of land in old con- veyances. French v. Carhart, 1 NV Y. 90.

5e apparatus — Not carried into the 5th edition (1979).

## KILLYTH -STALLION.

A custom by which lords of manors were bound to provide a stallion for the use of their tenants' mares. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## KIN.

Relation or relationship by blood or consanguinity. "The nearness of kin is com- puted according to the civil law.” 2 Kent, Comm. 413. See Kenlston v. Mayhew, 169 Mass. 166, 47 N. E. 612; Hibbard v. Odell, 16 Wls. 635 ; Lusby v. Cobb,. 80 Miss. 715, 32 South. 6. As to “next of kin,” see Next. — Kinsbote. In Saxon law. A composition or satisfaction paid for killing a kinsman. Spel- man.—-Kinsfolk. Relations; those who are of the same family.— Kinsman. A man of the same race or family. Wood v. Mitcham, 92 N.

Y. 379.— Kinswoman. A female relation.

5e apparatus — Not carried into the 5th edition (1979).

## KIND.

Genus; generic class; descrip- tion. See In Kind.

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## KINDRED.

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Relatives by blood. “Kin- dred of the whole blood, preferred to kindred of the half blood.” 4 Kent, Comm. 404, notes. See Butler v. Elytou Land Co., 84 Ala. 384, 4 South. 675; Farr v. Flood, 11 Cush. (Mass.) 25 ; Brookfield v. Allen, 6 Allen (Mass.) 586; Wetter v. Walker, 62 Ga. 144.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, 1606]**

"How sharper than a serpent's tooth it is / To have a thankless child!" — Lear on Goneril, the blood-bond turned against itself.

Why: Entry: 'relatives by blood.' The line is fiction's most famous utterance on what kinship obligates — and what its breach costs. Two lines, public-domain Shakespeare, wording confident.

## KING.

The sovereign, ruler, or chief ex- ecutive magistrate of a state or nation whose constitution is of the kind called "monarchi- cal” is thus named if a man ; if it be a woman, she is called “queen.” The word ex- presses the idea of one who rules singly over a whole people or has the highest execu- tive power; but the office may be either hereditary or elective, and the sovereignty of the king may or may not be absolute, accord- ing to the constitution of the country.

— King-craft. The art of governiag.-r.King- geld. A royal aid; an escuage, (q. v.) — King’* silver. In old English practice. A fine due the king pro liventia concordandi, (for leave to agree.) in the process of levying a fine. 5 Coke, 39, 43; 2 Inst 511; 2 Bl. Comm. 350. —King’s widow. In fendal law. A widow of the king’s tenant in chief, who was obliged to take oath in chancery that she would not marry without the king's leave.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 8:15, KJV]**

By me kings reign, and princes decree justice.

Why: The entry is the king as sovereign ruler. The verse grounds that office: kings reign by Wisdom, and princes decree justice — the scriptural account of whence a king's rule and its just end derive. Speaker is personifi...

**[Hip-hop] — Hip-hop**

**[Nas, 'If I Ruled the World (Imagine That)', 1996]**

"If I ruled the world, imagine that / I'd free all my sons, I love 'em, love 'em, baby" — the MC imagines himself sovereign and exercises the sovereign's defining prerogative: freeing the bound, the pardon power turned toward the incarcerated.

Why: Genuine sovereignty link: kingship as the power to liberate. The "sons" are the imprisoned (confirmed in scholarship on the track); the fantasy of rule is exercised as emancipation — the king's highest executive act.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Richard II, c. 1595]**

"Not all the water in the rough rude sea / Can wash the balm off from an anointed king;" — Richard II on the sacral character of kingship, even as his crown slips.

Why: Entry defines the king as the single ruler of a monarchical state; the speech is the classic literary statement of the anointed-king idea the entry's 'king-craft' tradition assumes. Two lines, public domain.

## KING’S ADVOOATE.

An English advo- cate who holds, in the courts in which the rules of the canon and civil law prevail, a similar position to that which the attorney general holds in the ordinary courts, i. e„ he acts as counsel for the crown in ecclesias- tical, admiralty, and probate cases, and ad- vises the crown on questions of international law. In order of precedence it seems that he ranks after the attorney general. 3 Steph. Comm. 275n.

5e apparatus — Not carried into the 5th edition (1979).

## KING’S BENCH.

The supreme court of common law in England, being so called be- cause the king used formerly to sit there in person, the style of the court being “coram ipso rege." It was called the “queen’s bench” in the reign of a queen, and during the pro- tectorate of Cromwell it was styled the “upper bench.” It consisted of a chief justice and three puisne justices, who were by their office the sovereign conservators of the peace and supreme coroners of the laud. It was a remnant of the aula regi «, and was not originally fixed to any certain place, hut might follow the king’s person, though for some centuries past It usually sat at West- minster. It had a very extended jurisdiction both In criminal and civil causes ; the for- mer In what was called the ' crown side” or "crown office,”' the latter in the "plea side,” of the court. Its civil jurisdiction was grad- ually enlarged until it embraced all species of personal actions. Since the judicature acts, this court constitutes the “king's bench di- vision” of the “high court of justice.” See 3 Bl. Comm. 41-43.

5e apparatus — Not carried into the 5th edition (1979).

## KING’S CHAMBERS.

Those portions of the seas, adjacent to the coasts of Great Britain, which are inclosed within headlands so as to be cut off from the open sea by im- aginary straight lines drawn from one prom- ontory to another.

5e apparatus — Not carried into the 5th edition (1979).

## KING’S CORONER AND ATTORNEY.

An officer of the court of king’s bench, usu- ally called "the master of the crown office,” whose duty It is to file informations at the suit of a private subject by direction of the court. 4 Bl. Comm. 308, 300 ; 4 Steph. Comm. 3T4, 378.

5e apparatus — Not carried into the 5th edition (1979).

## KING’S COUNSEL.

Barristers or Ser- jeants who have been called within the bar and selected to be the king’s counsel. They answer In some measure to the advocati fig c», or advocates of the revenue, among the Ro- mans. They must not be employed against the crown without special leave, which Is, however, always granted, at a cost of about nine pounds. 3 Bl. Comm. 27.

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## KING’S EVIDENCE.

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When several per- sons are charged with a crime, and one of them gives evidence against his accomplices, on the promise of being granted a pardon, he Is said to be admitted king's or (In Ameri- ca) state's evidence. 4 Steph. Comm. 305; Sweet.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cooperation agreements; U.S.S.G. § 5K1.1 — substantial assistance]**

The practice the entry describes — an accomplice testifying against confederates on promise of pardon — survives as the cooperating-witness regime: accomplice testimony taken under cooperation or substantial-assistance agreements.

Why: Old form to living form: the entry's 'king's evidence' is the ancestor of the modern federal cooperation/substantial-assistance practice — the map names the living institution. [re-homed from "KING'S EVIDENCE" to 'KING’S EVIDENCE' (OCR headword / parser-merge artifact)]

## KING’S PROCTOR.

A proctor or solici- tor representing the crown In the former practice of the courts of probute and divorce. In petitions for dissolution of marriage, or for declarations of nullity of marriage, the king's proctor may, under the direction of the attorney general, and by leave of the court, intervene in the suit for the purisise of proving collusion between the parties. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## KING’S REMEMBRANCER.

An offi- cer of the central office of the English su- preme court. Formerly he was an officer of the exchequer, and had important duties to

perform iu protecting the rights of the crown; c. g., by Instituting proceedings for the recovery of land by writs of intrusion, (g. t>„) and for the recovery of legacy and succession duties; but of late years adminis- trative changes have . lessened the duties of the office. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## KINGDOM.

A country where -an officer called a "king” exercises the powers of gov- ernment, whether the same be absolute or limited. Wolff, Inst. Nat $ 904. In some kingdoms, the executive officer may be a woman, who Is called a “queen.”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## KINGS-AT-ARMS.

The principal her- ald of Engluqd was of old designated “king of the heralds,” a title which seems to have been exchanged for “king-at-arms” about the reign of Henry IV. The kings-at-arms at present existing in England are three, — Gar- ter, Clarenceux, and Korroy, besides Lath, who is not a member of the college. Beat- land Is placed under au officer called “Lyon King-at-Arms," and Ireland Is the province of one named “Ulster.” Wharton.

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KINTAL, or KINTLE. A hundred

pounds in weight. See Quintal.

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**KINTLIDGE.**

A ship's ballast See Kentlage.

5e apparatus — Not carried into the 5th edition (1979).

**KIPPER-TIME.**

In old English law. The space of time between the 3d of May and the Epiphany, In which fishing for salmon in the Thames, between Gravesend and Henley- on-Thames, was forbidden. Rot. Pari. 50 Edw. Ill;

5e apparatus — Not carried into the 5th edition (1979).

**KIRBY'S QUEST.**

In English law. An ancient record remaining with the remem- brancer of the exchequer, being an inquisi- tion or survey of all the lands in England, taken in the reign of Edward I. by John do Kirby, his treasurer. Blount; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**KIRK.**

In Scotch law. A church: the church ; the established church of Scotland.

-Kirk-mote. A meeting of parishioners on church affairs. — Kirk-officer. The beadle of a church in Scotland.— Kirk-session. A pa- rochial church court in Scotland, consisting of the ministers and elders of each parish.

5e apparatus — Not carried into the 5th edition (1979).

**KISSING THE BOOK.**

The ceremony of touching the Hits to a copy of the Bible, used In administering oaths. It Is the exter- nal symbol of the witness' acknowledgment of the obligation of the oath.

5e apparatus — Carried into the 5th edition (1979).

# H

**HIST.**

In Hindu law. A stated payment ; installment of rent.

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# K

**KLEPTOMANIA.**

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In medical jurispru- dence. A form (or symptom) of mania, con- sisting in an Irresistible propensity to stoaL See Insanity.

; KNAVE. A rascal ; a false, tricky, or de- ceitful'person. The word originally meant a boy, attendant, or servant, but long-con- tinued usage has given It Its present signifi- cation.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: M'Naghten rule — insanity requires inability to know the nature of the act or that it was wrong]**

The 'mania' the entry invokes is judged in criminal law by the insanity test: the accused must not have known the nature of the act or that it was wrong.

Why: The entry classifies kleptomania under insanity in medical jurisprudence; the M'Naghten rule is the genuine governing test for the criminal-law insanity the entry points to — stated as axiom to avoid an uncertain repo...

## KNAVESHIP.

A portion of grain given to a mill-servant from tenants who were bound to grind their grain at such mill.

5e apparatus — Not carried into the 5th edition (1979).

## KNIGHT.

In English law. The next personal dignity after the nobility. Of knights there are several orders and degrees. The first in rank are knights of the Garter, instituted by Richard I. and Improved by Edward III. in 1344; next follows a kuight banneret; then come knights of the Bath, instituted by Henry IV., and revived by George I.; and they were so called from a ceremony of bathing the night before their creation. The last order are knights bachel- ors, who, though the lowest, are yet the most ancient, order of knighthood; for we find that King Alfred conferred this order upon his son Athelstan. 1 Bl. Comm. 403.

—Knighthood. The rank, order, character, or dignity of a knight. — Knight’s fee. See Fee.— Knights bachelors. In English law. The most ancient, though lowest, order of knighthood. 1 Bl. Comm. 404.— Knights ban- neret. In English law. Those created by the sovereign in person on the field of battle. They rank, generally, after knights of the Garter. 1 Bl. Comm. 403. — Knights of St. Michael and St. George. An English order of knight- hood, instituted in 1818.— Knights cf St. Patrick. Instituted in Ireland by George III..

A. D. 1763. They have no rank in England. —Knights of the Bath. An order institut- ed by Henry IV.. and revived by George T. They are so called from the ceremony formerly observed of bathing the night before -their cre- ation.—Knights of the chamber. Those created in the sovereign's chamber in time of peace, not in the field. 2 Inst. 666.— Knights of the Garter. Otherwise called “Knights of the Order of St. George.” This order was founded by Richard I., and improved by Ed- ward III., A. I>. 1344. They form the highest order of knights.— Knights of the post. A term for hireling witnesses.— Knights of the shire. In English law. Members of parlia- ment representing counties or shires, in contra- distinction to citizens or burgesses, who repre- sent boroughs or corporations. A knight of the shire is so called, because, as the terms of the writ for election still require, it was former- ly

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necessary that he should be a knight. This restriction was coeval with the tenure of knight-service. when every man who received a knight’s fee immediately of the crown was constrained to be a knight : but at present any person may be chosen to fill the office who is not an alien. The money qualification is abolished by 21 Viet. c. 26. Wharton. — Knights of the

Thistle. A Scottish order of knighthood. This order is said to have been instituted by Achaius. king of Scotland. A. D. 819. The bet- ter opinion, however, is that it was instituted by James V. in 1534. was revived by James

VII. (James II. of England) in 1687, and re- established by Queen Anne in 1703. They have no rank in England. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Miguel de Cervantes, Don Quixote, 1605]**

(paraphrase) In Don Quixote, a country gentleman has himself dubbed a knight-errant and rides out to right wrongs — the comedy turning on the gap between the knightly dignity the entry catalogues and the modern world. (paraphrase)

Why: Entry catalogues the English orders of knighthood as personal dignities; Cervantes's knight is world literature's great meditation on what that dignity means when its age has passed.

## KNIGHT-MARSHAL.

In English law. An officer in the royal household who has Jurisdiction and cognizance of offenses com- mitted within the household and verge, and Bl.Law Dict.(2d Ed.)— 44

of all contracts made therein, a member of the household being on6 of the parties. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## KNIGHT-SERVICE.

A species of feu- dal tenure, which differed very slightly from a pure and perfect feud, being entirely of a military nature; and it was the first, most universal, and most honorable of the feudal tenures. To make a tenure by knight-service, a determinate quantity of laud was neces- sary, which was called a “knight's fee,” (feo- dum militare ,) the measure of which was estimated at 680 acres. Co. Litt. 69a; Brown.

5e apparatus — Not carried into the 5th edition (1979).

## KNIGHTENCOCRT.

A court which used to be held twice a year by the bishop of Hereford, in England.

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## KNIGHTENGUILD.

An ancient guild or society formed by King Edgar.

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## KNOCK DOWN.

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To assign to a bidder at an auction by a knock or blow of the hammer. Property is- said to be “knocked down” when the auctioneer, by the fall of his hammer, or by any other audible or visi- ble announcement, signifies to the bidder that he is entitled to the property on paying the amount of bis bid, according to the terms of the sale. “Knocked down” and “struck off” are synonymous terms. Sherwood v. Reade, 7 Hill (N. V.) 439.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 2-328 — sale by auction complete on fall of the hammer]**

The auctioneer's fall of the hammer the entry describes is the common-law moment of completion codified in sales law: a sale by auction is complete when the auctioneer so announces by the fall of the hammer.

Why: Near-verbatim match: the entry defines 'knocked down' by the hammer's fall; § 2-328(2) codifies exactly that moment — confident.

## KNOT.

In seamen’s language, a “knot” is a division of the log-line serving to meas- ure the rate of the vessel’s motion. The number of knots which run off from the reel in half a minute shows the number of miles the vessel sails In an hour. Hence when a ship goes eight miles an hour she is said to go “eight knots.” Webster.

5e apparatus — Carried into the 5th edition (1979).

## KNOW ALL MEN.

In conveyancing. A form of public address, of great antiquity, and with which many written Instruments, such as bonds, letters of attorney, etc., still commence.

5e apparatus — Carried into the 5th edition (1979).

## KNOWINGLY.

With knowledge; con- sciously ; intelligently. The use of this word in an iudictment is equivalent to an aver- ment that the defendant knew what he was about to do, and, with such knowledge, pro- ceeded to do the act charged. ' U. S. v. Clay- pool (D. G.) 14 Fed. 128.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Actus reus non facit reum nisi mens sit rea — the act does not make a person guilty unless the mind is guilty]**

The knowledge the entry defines is the mens rea element: criminal liability requires a guilty mind as well as a guilty act.

Why: The entry expounds 'knowingly' as the indictment's knowledge averment; the maxim is the canonical statement of the mens-rea requirement — genuine, not forced.

## KNOWLEDGE.

The difference between "knowledge” and “heller’ is nothing more than in the degree of certainty. With re- gard to things which make not a very deep impression on the memory, it may be called “belief.” “Knowledge” is nothing more than a man’s firm belief. The

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difference is ordi- narily merely in the degree, to be judged of by the court, when addressed to the court ; by the Jury, when addressed to the

Jury. Hatch v. Carpeuter, 9 Gray (Mass.) 271. See Utley v. Hill, 155 Mo. 232, 55 S.

W. 1091, 49 L. R. A. 323, 78 Am. St. Rep. 509 ; Ohio Valley Coffin Co. v. Goble. 28 Ind. App. 362, 62 N. El 1025; Clarke v. Ingram, 107 Ga. 565, 33 S. E. 802.

Knowledge may be classified in a legal sense, as positive and imputed,— imputed, when the means of knowledge exists, known and acces- sible to the pnrty, and capable of communicat- ing positive information. When there is knowl- edge, notice, as legally and technically under- stood, becomes immaterial. It is only material when, in the absence of knowledge, it produces the same results. However closely actual notice may, in many instances, approximate knowl- edge, and constructive notice may be its equiva- lent in effect, there may be actual notice with- out knowledge; and, when constructive notice is made the test to determine priorities of right, it may fall far short of knowledge, and be suf- ficient. Cleveland Woolen Mills v. Sibert, 81 Ala. 140, 1 South. 773.

— Carnal knowledge. Coitus; copulation ; sexual intercourse. — Personal knowledge.

Knowledge of the truth in regard to a particular fact or allegation, which is original, and does not depend on information or hearsay. Per- sonal knowledge of an allegation in an answer is personal knowledge of its truth or falsity; and if the allegation is a negative one, this necessarily Includes a knowledge of the truth or falsity of the allegation denied. West v. Home Ins. Co. (C. C.) 18 Fed-. 622.

KNOWK.MEK. A title formerly given to the Lollards. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: 'Knowledge is power' (Scientia potentia est), attributed to Francis Bacon]**

Scientia potentia est — 'Knowledge is power.'

Why: Entry treats knowledge as firm belief distinguished by degree of certainty; the maxim is the classical-wisdom capsule of why that distinction matters. Short maxim, traditional attribution stated as attribution.

## KORAN.

The Mohammedan book of faith. It contains both ecclesiastical and secular laws.

5e apparatus — Not carried into the 5th edition (1979).

## KUT-KTJBALA.

In Hindu law. A mort- gage-deed or deed of conditional sale, being one of the customary deeds or instruments of security in India as declared by regula- tion of 1806, which regulates the legal pro- ceedings to be taken to enforce such a se- curity. It is also called “ Byebil-Wufla .” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## KYMORTHA.

A Welsh term for a wast- er, rhymer, minstrel, or other vagabond who makes assemblies

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and collections. Barr- ing. Ob. St 360.

5e apparatus — Not carried into the 5th edition (1979).

**KYTH.**

Sax. Kin or kindred.

h.

5e apparatus — Not carried into the 5th edition (1979).

# L

**L.**

This letter, as a Roman numeral, stands for the number “fifty." It Is also nsed as an abbreviation for “law," “Uber," (a book,) “lord,” and some other words of which It Is the initial.

Ik 5. An abbreviation of " Long Quinto,” one of the parts of the Year Books.

Xu C. An abbreviation which may stand either for “Lord Chancellor,” “Lower Cana- da,” or “Leading Cases.”

lu J. An abbreviation for “Law Judge;” also for “Law Journal.”

5e apparatus — Carried into the 5th edition (1979).

**L.**

Xu (also L. Lat) and Xu F. (also L. Fr.) are used as abbreviations of the terms “Law Latin” and “Law French.”

Xu R. An abbreviation for “Law Re- ports."

Xu 8. An abbreviation for “ Locus tigilU" the place of the seal, i. e., the place where a seal Is to be affixed, or a scroll which stands Instead of a seal. See Smith v. But- ler, 25 N. B. 524; Barnes v. Walker, 115 Ga. 108, 41 S. E. 243; McLaughlin v. Brad- dy, 63 S. C. 433, 41 S. E. 523, 90 Am. St Rep. 681.

UCu The reduplicated form of the' abbre- viation “L.” for “law,” used as a plural. It Is generally used in citing old collections of statute law; as “LL. Hen. I.”

LL.B., XiXuM., and LL.B. Abbreviations nsed to denote, respectively, the three aca- demic degrees In law, — bachelor, master, and doctor of laws.

5e apparatus — Carried into the 5th edition (1979).

**LA.**

Fr. The The definite article in the feminine gender. Occurs in some legal terms and phrases; as “Terines de la Ley," terms of the law.

LA Fr. There. An adverb of time and place; whereas. ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## LA CHAMBRE DBS ESTEXLLES.

The

star-chamber.

La conscience est la pins change ante des rigles. Conscience is the most change- able of rules. Bouv. Diet.

La ley favour la via d’nn home. The

law favors the life of a man. Yearb. M. 10 Hen. VI. 51.

Ia ley favour l’euherltanoe d’uu home.

The law favors the Inheritance of a man. Yearb. M. 10 Hen. VI. 51.

L

La ley voet plus tost suffer un mis— eheife que un inconvenience. The law

will sooner suffer a mischief than an incon- venience. Lltt. § 231. It is holden for an inconvenience that any of the maxims of the low should be broken, though a private man suffer loss. Co. Lltt. 1526.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 16 Car. I, c. 10 (1641) — abolition of the Star Chamber]**

The Star Chamber the entry names was abolished by statute in 1641 as an instrument of arbitrary prerogative power.

Why: The entry names the court; the abolishing statute is the genuine legal event defining its place in constitutional history — the court's significance is its abolition.

## LAAS.

In old records. A net, gin, or snare.

5e apparatus — Not carried into the 5th edition (1979).

## LABEL.

Anything appended to a larger writing, as a codicil ; a narrow slip of paper or parchment affixed to a deed or writ, In order to hold the appending seal.

In the vernacular, the word denotes a printed or written slip of paper affixed to a manufactured article, giving information as to its nature or quality, or the contents of a package, name of the maker, etc. See Per- kins v. Heert, 5 App. Div. 335, 39 N. Y. Supp. 223 ; Higgins v. Keuffel, 140 U. S. 428, 11 Sup. Ct. 731. 35 I* Ed. 470; Burke v. Casein, 45 Cal. 481, 13 Am. Rep. 204.

A copy of a writ In the exchequer. 1 Tldd, Pr. 156.

XABUfA. In old records. Watery land.

LABOR. 1. Work; toil; service. Con- tinued exertion, of the more onerous and in- ferior kind, usually and chiefly consisting in the protracted expenditure of muscular force, adapted to the accomplishment of specific useful ends. It Is used in this sense In several legal phrases,

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such as “a count for work and labor,” “wages of labor,” etc.

“Labor," "business,” and “work” are not syn- onyms. Labor may be business, but it is not necessarily so; and business is not always la- bor. Labor implies toil ; exertion producing weariness; manual exertion of a toilsome na- ture. Making an agreement for the sale of a chattel Is not within a prohibition of common labor upon Sunday, though it Is (if by a mer- chant in his calling) within a prohibition upon business. Bloom v. Richards, 2 Ohio St. 387. —Common labor, within the meaning of Sun- day laws, is not to be restricted to manual or physical labor, but includes the transaction of ordinary business, trading, and the execution of notes and other instruments. Bryan v. Wat- son. 127 Ind. 42. 26 N. E. 666, 11 L. R. A. 63 ; Link v. Clemmens, 7 Blackf. (Tnd.l 480: Cincin- nati v. Rice, 15 Ohio, 225; Eitel v. State. 33 Ind. 201. But compare Bloom v. Richards. 2 Ohio St. 387 ; Iloracek v. Keebler, 5 Neb. 355. It does not include the transaction of judicial business or the acts of public officers. State v. Thomas. 61 Ohio St. 444. 56 N. E. 276. 48 L. .

R. A. 459; Hastings v. Columbus, 42 Ohio St. 585.

2. A Spanish land measure, in use in Mexico and formerly In Texas, equivalent to 177i/t acres.

5e apparatus — Carried into the 5th edition (1979).

## LABOR  A JURY.

In old practice. To tiuniier with a Jury : to endeavor to influence them in their verdict, or their verdict gen- erally.

L.ESIO ULTRA DIMIDIUM

LABOR ARIIS . Au auoieut writ against persons who refused to serve and do labor, and who had no means of living; or against such as, having served in the winter, refus- ed to serve in the summer. Reg. Orlg. 189.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1503 — influencing or injuring a juror]**

Tampering with a jury — endeavoring to influence jurors in their verdict — is federal obstruction of justice.

Why: The entry defines the old practice of 'laboring' a jury; § 1503 is the genuine modern criminal prohibition of exactly that conduct — old form to living statute.

## LABORER.

One who, as a means of livelihood, performs work and labor for those who employ him. Oliver v. Macon Hardware Co., 98 Oa. 249, 23 S. E. 403, 58 Am. St. Rep. 300; Blanchard v. Railway Co., 87 Me. 241, 32 Atl. 890; In re Ho King (D. C.) 14 Fed. 725; Coffin v. Reynolds, 37

N. Y. 646; Weymouth v. Sanborn, 43 N. H. 171, 80 Am. Dec. 144; Epps Epps, 17 111. App. 201. In English statutes, this term is generally understood to designate a servant employed in husbandry or manufactures, and not dwelling in the home of his em- ployer. Wharton ;

Mozley & Whitley.

A laborer, as the word is used in the Penn- sylvania act of 1872, giving a certain preference of lien, is one who performs, with his own hands, the contract which he makes with his employer. Appeal of Wentroth, 82 Pa. 469.

— Laborers, statutes of. In English law. These are the statutes 23 Edw. III., 12 Rich.

11., 5 Eliz. c. 4, and 20 & 27 Viet. c. 125, mak- ing various regulations as to laborers, servants, apprentices, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire. Go not from house to house.

Why: The entry is one who performs work and labor for employers as a livelihood. The verse states the laborer's right in the LORD's own commissioning of the seventy: the labourer is worthy of his hire — the scriptural grou...

**[Humanity] — Humanity / Fiction & Film**

**[John Steinbeck, Of Mice and Men, 1937]**

(paraphrase) In Of Mice and Men, George and Lennie drift from ranch to ranch as hired hands, dreaming of a stake of their own — the itinerant laborer's life the entry defines, in Depression California. (paraphrase)

Why: Entry: 'one who, as a means of livelihood, performs work and labor for those who employ him.' The novel is the American fiction of that condition.

## LAC, LAK.

In Indian computation,

100.000. The value of a lac of rupees is about £10,000 sterling. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LACE.

A measure of land equal to one pole. This term is widely used in Cornwall.

5e apparatus — Not carried into the 5th edition (1979).

## LACERTA.

In old English law. A fathom. Co. Litt 46.

5e apparatus — Not carried into the 5th edition (1979).

## LACHES.

Negligence, consisting in the omission of something which a party might do, and might reasonably be expected to do, towards the vindication or enforcement of his rights. The word is generally the syno- nym of “remissness,” “dilatoriness, ” “un- reasonable or unexcused delay,” the oppo- site of “vigilance,” and means a want of activity and diligence in making a claim or moving for the enforcement of a right (par- ticularly in equity) which will afford ground for presuming against it, or for refusing re- lief, where that is discretionary with the court. See Ring v. Lawless, 190 111. 520, 60 N. E. 881; Wlssler v.

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Craig, 80 Va. 30; Morse v. Seibold, 347 111. 318, 35 N. E. 369; Babb v. Sullivan, 43 S. C. 436, 21 S. E. 277; draff v. Portland, etc., Co., 12 Colo. App. 10(i, 54 Pac. 854; Coosaw Min. Co. v. Caro- lina Min. Co. (C. C.) 75 Fed. 868; Parker v. Bethel Hotel Co., 96 Tenn. 252, 34 S. W. 209. 31 L. R. A. 706: Chase v. Chase, 20 R.

I. 202, 37 Atl. 804; Ilellams v. Prior, 64

S. C. 296. 42 S. E. 106: First Nat. Bank v. Nelson. 106 Ala. 535. 18 South. 154; Cole v. Ballard, 78 Va. 347 ; Selbag v. Abltbol, 4 Manle & S. 462.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Vigilantibus non dormientibus aequitas subvenit — equity aids the vigilant, not those who slumber]**

Laches is the equitable bar the entry defines, governed by the maxim that equity aids the vigilant, not those who sleep on their rights.

Why: The entry defines laches as want of diligence barring equitable relief; the maxim is the canonical statement of that rule — an exact match.

## LACTA.

L. Lat. In old English law. Defect in the weight of money ; lack of

weight. This word and the verb “lactarc" are used in an assise or statute of the sixth year of King John. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LACUNA.

In old records. A ditch or dyke ; a furrow for a drain ; a gnp or blank in writing.

5e apparatus — Not carried into the 5th edition (1979).

## LACUS.

In. the civil law. A lake ; a receptacle of water which is never dry. Dig. 43, 14, 1, 3.

In old English law. Alloy or alloy of silver with base metal. Fleta, lib. 1, c. 22, * 6.

5e apparatus — Not carried into the 5th edition (1979).

## LADA.

In Saxon law. A purgation, or mode of trial by which one purged himself of an accusation ; as by oath or ordeal. Spel- man.

A water-course ; a trench or canal for draining marshy grounds. In old English, a lade or load. Spelman.

In old English law. A court of justice ; a lade or lath. Cowell.

LADE, or LODE. The mouth of a river.

5e apparatus — Not carried into the 5th edition (1979).

## LADEN IN BULK.

A term of maritime law, applied to a vessel which is freight- ed with a cargo which is neither

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in casks, boxes, bales, nor cases, but lies loose in the hold, being defended from wet or moisture by a number of mats and a quantity of dun- nage. Cargoes of corn, salt, etc., are usu1- ally so shipped.

5e apparatus — Carried into the 5th edition (1979).

## LADING, BILL OF.

See Bint..

5e apparatus — Not carried into the 5th edition (1979).

## LADY.

In English law. The title be- longing to the wife of a peer, and (by cour- tesy) the wife of a baronet or knight, and al- so to any woman, married or sole, whose father was a nobleman of a rank not lower than that of earl. 1

— Lady-coart. In English law. The court of a lady of the manor.— -Lady day. _ The 25th of March, the feast of the Annunciation of the Blessed Virgin Mary. In parts of Ire- land, however, they so designate the 15th of August, the festival of the Assumption of the Virgin.— Lady’s friend. The style of an of- ficer of the English house of commons, whose dutv was to secure a suitable provision for the wife, when her husband sought a divorce by special act of parliament. The act of _ 1857 abolished parliamentary divorces, and this of- fice with them.

5e apparatus — Carried into the 5th edition (1979).

## LJESA MAJESTAS.

Lat. Leze-majes- ty, or injured majesty; high treason. It is a phrase taken from the civil law, and an- ciently meant any ofTense against the king’s person or dignity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined; two-witness rule]**

The elastic Roman 'injured majesty' the entry describes is the abuse the American treason clause was written to prevent: treason is narrowly defined, requiring two witnesses to the same overt act.

Why: The entry traces laesa majestas as any offense against the king's dignity; Art. III, § 3 is the genuine constitutional response — its narrowness guards against the very elasticity the entry describes.

**[Scripture] — Scripture**

**[Romans 13:2, KJV]**

Whosoever therefore resisteth the power, resisteth the ordinance of God: and they that resist shall receive to themselves damnation.

Why: Laesa majestas is injured majesty — high treason, any offense against the king's person or dignity. The verse states the gravity of that offense in the moral order: to resist the sovereign power is to resist God's ord…

# U

## UESIO ULTRA DIMIDIUM VEL EN- / ORMIS.

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In Roman law. The injury sus- tained by one of the parties to an onerous contract when he had beeu overreached by the other to the extent of more than one- half of the value of the subject-matter; e.

g., ■when a vendor had not received half the value of property sold, or the purchaser hud paid more than double value. Colq. Rom. Civil Law, f 2094.

LiESIONE FIDEL, SUITS FBO, Suits in the ecclesiastical courts for spiritual of- fenses against conscience, for non-payment of debts, or breaches of civil contracts. This attempt to turn the ecclesiastical courts into courts of equity, was checked by the consti- tutions of Clarendon, A. D. 1164. 3 Bl.

Comm. 52.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-302 — unconscionable contracts or clauses]**

The Roman lesion — relief where a party to an onerous contract was overreached by more than half the value — is the classical ancestor of the modern unconscionability doctrine.

Why: The entry defines laesio enormis; § 2-302 is the genuine modern form of relief against grossly unfair bargains — old form to living statute, confident of the section.

**[Scripture] — Scripture**

**[Leviticus 25:14, KJV]**

And if thou sell ought unto thy neighbour, or buyest ought of thy neighbour's hand, ye shall not oppress one another.

Why: The entry is the Roman lesion doctrine: a party overreached beyond half the value in an onerous contract is injured. The verse is the Mosaic rule of fair dealing in sale and purchase — 'ye shall not oppress one anothe...

## UESIWERP.

A thing surrendered into the hands or power of another ; a thing giv- en or delivered. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## UET.

In old English law. One of a class between servile and free. Palgrave, i. 354.

5e apparatus — Not carried into the 5th edition (1979).

## UET ABE JERUSALEM.

Easter of- ferings, so called from these words in the hymn of the day. They are also denominat- ed “quadragesimalia." Wharton.

UETHB, or LATHE. A division or district peculiar to the county of Kent. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

# L

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**LAFORPSWIC.**

In Saxon law. A be- traying of one’s lord or master.

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**LAGA.**

L. Lat., from the Saxon “lap.” Law ; a law.

5e apparatus — Not carried into the 5th edition (1979).

**LAGAN.**

See Ligan.

5e apparatus — Not carried into the 5th edition (1979).

**LAGE DAT.**

In old English law. A law day ; a time of open court ; the day of the county court ; a juridical day.

5e apparatus — Not carried into the 5th edition (1979).

**LAGE-MAN.**

A lawful man ; a good and lawful man. A Juror. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**LAGENA.**

L. Lat. In old English law. A measure of ale. Fleta, lib. 2, c. 11. Said to consist of six sextaries. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**LAGU.**

In old English law. Law; also used to express the territory or district in which a particular law was in force, as Dena lagu, Mercna lagu, etc.

5e apparatus — Not carried into the 5th edition (1979).

**LAHL8LIT.**

A breach of law. Cowell. A mulct for an offense, viz., twelve “ores.”

LAHMAlf, or LAGEMANNUS. An old

word for a lawyer. Domesday, I. 189.

5e apparatus — Not carried into the 5th edition (1979).

**LAIA.**

A roadway in a wood. Mon. Angl. t 1, p. 483.

5e apparatus — Not carried into the 5th edition (1979).

**LAICUS.**

Lat. A layman. One who is not in holy orders, or not engaged in the ministry of religion.

LAIRWITE, or LAIRESITE. A fine for adultery or fornication, anciently paid to the lords of

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some manors. 4 Inst. 206.

5e apparatus — Not carried into the 5th edition (1979).

## LAIS GENTS.

L. Fr. Lay people; a Jury.

5e apparatus — Not carried into the 5th edition (1979).

## LAITT.

In English law. Those persons who do not make a part of the clergy. They are divided into three states: (1) Civil, in- cluding all the nation, except the clergy, the army, and navy, and subdivided into the no- bility and the commonalty ; (2) military; (3) maritime, consisting of the navy. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LAKE.

A large body of water, contained in a depression of the earth's surface, and supplied from the drainage of a more or less extended area. Webster. See Jones v. Lee. 77 Mich. 35, 43 N. W. 855 ; Ne-pee-nauk Club v. Wilson, 96 WIs. 290, 71 N. W. 661.

The fact that there Is a current from a higher to a lower level does not make that a river which would otherwise be a lake; and the fact that a river swells out into broad, pond-like sheets, with a current, does not make that a lake which would otherwise be a river. State v. Gilmanton, 14 N. H. 477.

5e apparatus — Carried into the 5th edition (1979).

## LAMANEUR.

Fr. In Freuch marine law. A pilot. Ord. Mar. liv. 4, tit. 3.

5e apparatus — Not carried into the 5th edition (1979).

## LAMB.

A sheep, ram, or ewe under the age of one year. 4 Car. & P. 216.

5e apparatus — Not carried into the 5th edition (1979).

## LAMBARD'S ARCHAION OMI A.

A

work printed in 1568, containing the Anglo- Saxon laws, those of William the Conqueror, and of Henry I.

5e apparatus — Not carried into the 5th edition (1979).

## LAMBARD'S EIRENARCHA.

A work upon the office of a justice of the peace, which, having gone through two editions, one in 1579, the other in 1581, was reprinted in English in 1599.

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## LAMBETH DEGREE.

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In English law. A degree conferred by the Archbishop of Canterbury, in prejudice of the universities. 3 Steph. Comm. 65; 1 Bl. Comm. 381.

5e apparatus — Not carried into the 5th edition (1979).

## LAME DUCK.

A cant term on the stock exchange for a person unable to -meet his engagements.

5e apparatus — Carried into the 5th edition (1979).

## LAMMAS DAT.

The 1st of August. It is one of. the Scotch quarter days, and is what is called a "conventional term.”

5e apparatus — Not carried into the 5th edition (1979).

## LAMMAS LANDS.

Lands over which there is a right of pasturage by persons other than the owner from about Lammas, or reap- ing time, until' sowing time. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LANA.

Lat. In the civil law. Wool. See Dig. 32, 60, 70, 88.

5e apparatus — Not carried into the 5th edition (1979).

## LANCASTER.

A county of England, erected into a county palatine in the reign of Edward III., but now vested In the crown.

5e apparatus — Not carried into the 5th edition (1979).

## LANCETI.

In feudal law. Vassals who were obliged to work for their lord one day In the week, from Michaelmas to autumn, either with fork, spade, or flail, at the lord's option. Spelman.

LAND, in the most general sense, compre- hends any ground, soil, or earth whatsoever; as meadows, pastures, woods, moors, waters, marshes, furzes, and heath. Co. Lltt 4a.

The word "land” includes not only the soil, but everything attached to It, whether attached by the course of nature, as trees, herbage, and water, or by the hand of man, as buildings aud fences. Mott v. Palmer, 1

N. Y. 572; Nessler v. Neher, 18 Neb. 649, 26 N. W. 471 ; Higgins Fuel Co. v. Snow, 113 Fed. 433, 51 C. C. A. 267 ; Lightfoot v. Grove, 5 Heisk. (Tenn.) 477 ; Johnson v. Richardson, 33 Miss. 4C4; Mitchell v. Warner, 5 Conn. 517 ; Myers v. League, 62 Fed. 659, 10 C. C.

A. 571. 2 Bl. Comm. 16, 17.

Land Is the solid material of the earth, what- ever may be the ingredients of which it is composed, whether soil, rock, or other sub- stance. Civ. Code Cal. | 659.

Philosophically, it seems more correct to say that the word "land” means, in law, -as in the

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vernacular, the soil, or portion of the earth’s cfust ; and to explain or justify such expressions as that "whoever owns the land owns the buildings above and the minerals below,” upon the view, not that these are within the extension of the term “land,” but that they are so con- nected with it that by rules of law they pass bv a conveyance of the land. This view makes "land,” as a term, narrower in signification than "realty;” though it would allow an instrument speaking of land to operate co-exten- sively with one granting realty or real property by either of those terms. But many of the authorities use the expression “land*’ as in- cluding these incidents to the soil. Abbott — Accommodation lands. In English law. Lands bought by a builder or speculator, who erects houses thereon, and then leases portions of them upon an improved ground-rent. — Boun- ty lands. Portions of the public domain given or donated to private persons as a bounty for services rendered, chiefly for military service. — Certificate lands. In Pennsylvania, in the period succeeding the revolution, lands set apart In the western portion of the state, which might be bought with the certificates which the soldiers of that state in the revolutionary army had received in lieu of pay. Cent Diet. —Crown lands. In England and Canada, lands belonging to the sovereign personally or to the government or nation, as distinguished from such as have passed into private ownership.—Demesne lands. See Demesne. — Do- nation lands. Lands granted from the pub- lic domain to an individual as a bounty, gift, or donation; particularly. In early Pennsyl- vania history, lands thus granted to soldiers of the revolutionary war.— Fabric lands. In English law. lands given towards the main- tenance. rebuilding, or repairing of cathedral and other .churches. — General land office. An office of the United States government, being a division of the department of the in- terior, having charge of all executive action relating to the public lands, including their survey, sale or other disposition, and patent- ing; constituted by act of congress in 1812 (Rev. St. $ 446 [U. S. Comp. St. 1901, p. 255]) and presided over by an officer styled "commissioner of the general land office."— Land certificate. Upon the registration of freehold land under the English land transfer

act, 1875, a certificate is given to the registered proprietor, and similarly upon every transfer of registered land. This registration super- sedes the necessity of any further registration m the register counties. Sweet.— Land court* In American law. A court formerly existing in St. Louis, Mo., having a limited territorial jurisdiction over actions concerning real prop- erty. and suits for dower, partition, etc.— Land damages. See Damages.— Land department. That office of the United States government which has jurisdiction and charge of the public lands, including the secretary of the interior and the commissioner of the general land office and their subordinate officers, and being in effect the department of the interior considered with reference to its powers and duties concerning the public lands. See

U. S. v. Winona & St. P. R. Co., 67 Fed. 95.!. 15 C. C. A. 96; Northern Pac. R. Co. v. Bar- den (C. C.) 46 Fed. 617.— Land district. A division of a state or territory, created by fed- eral authority, in which is located a United States land office, with a “register of the land office” and a “receiver of public money,” for the disposition of the public lands within the district. See U. S. v. Smith (C. C.) 11 Fed. 491.— Land-gabel. A tax or rent issuing out of land. Spelman says it was originally a

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} jenny for every bouse. This land-gabcl, or and-gavel, in the register of Domesday, was a quit-rent for the site of a house, or the land whereon it stood ; the same with what we now

call “ground-rent.” Wharton— Land grant. A donation of public lands to a subordinate government, a corporation, or an individual ; as, from the United States to a state, or to a railroad company to aid in the construction of its road.— Land offiees. Governmental offices, subordinate to the general land office, establish- ed in various parts of the United States, for the transaction of local business relating to the survey, location, settlement, pre-emption, and sale of the public lands. See “General land office," supra.— Land-poor. 18/ this term is generally understood that a man has a great deal of unproductive land, and perhaps is oblig- ed to borrow money to pay taxes; but a man “land-poor” may be largely responsible. Mat- teson v. Blackmer, 46 Mich. 397, 9 N. W. 445.— Land-reeve. A person whose business it is to overlook certain parts of a farm or estate ; to attend not only to the woods and hedge-timber, but also to the state of the fen- ces, gates, buildings, private roads, drift-ways, and water-courees ; and likewise to the stocking of commons, and encroachments of every kina, as well as to nrevent or detect waste and spoil in general, whether by the tenants or others: and to report the same to the manager or land steward. Enc. Lond. — Land steward. A per- son who overlooks or has the management of a farm or estate.— Land tax. A tax laid upon the legal or beneficial owner of real property, and apportioned upon the assessed value of his land.— Land tenant. The person actually in possession of land ; otherwise styled the “terre- tenant.”— Land titles and transfer act. An English statute (38 & 39 Viet. c. 87) providing for the establishment of a registry for titles to real property, and making sundry provisions for the transfer of lands and the recording of the evidences thereof. It presents some anal- ogies to the recording laws of the American states.— Land waiter. In English law. An

officer of the custom-house, whose duty is, up- on landing any merchandise, to examine, taste, weigh, or measure it. and to take an account thereof. In some ports they also execute the office of a coast waiter. They are likewise oc- casionally styled "searchers” and are to at- tend and join with the patent searcher in the execution of all cockets for the shipping of goods to be exported to foreign parts ; gnd, in cases where drawbacks on bounties are to be paid to the merchant on the exportation of any

goods, they, as well as the patent searchers, are to certify the shipping thereof on the deben- tures. Knc. Lond. — Land- warrant. The evi- dence which the state, on good consideration, gives that the person therein named Is entitled to the quantity of land therein specified, the bounds and description of which the owner of the warrant may fix by entry and survey, in the section of country set apart for its lo- cation and satisfaction. Neal v. President, etc., of East Tennessee College, 6 Yerg. (Tenn.) 205. —Mineral lands. In the land laws of the United States. Lands containing deposits of valuable, useful, or precious minerals in such

Quantities as to Justify expenditures in the eff- ort to extract them, and which are more val- uable for the minerals they contain than for agricultural or other uses. Northern Pac. R. Co.

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v. Soderberg, 1SS U. S. 526. 23 Sup. Ct. 365, 47 L. Ed. 575; Deffeback v. Hawke, 115 C. S. 392, 6 Sup. Ct. 95, 29 L. Ed. 423; Davis v. Wiebbold. 139 U. S. 507. 11 Sup. Ct. 628, 35 L. Ed. 238: Smith v. Hill, 89 Cal. 122, 26 Pac. 644: Merrill v. Dixon, 15 Nev. 406.— Place lands. Lands granted in aid of a railroad company which are within certain limits on each side of the road, and which be- come instantly fixed by the adootion of the line of the road. There is a well-defined differ- ence between place lands and “indemnity lands.” See Indemnity. See Jackson v. La Moure County. 1 N. D. 238, 46 N. W. 449— Public lands. The general public domain ; unappro- riated lands ; lands belonging to the United tates and which are subject to sale or other disposal under general laws, and not reserved or held back for any special governmental or public purpose. Newhall v. Sanger, 92 U. S. 763. 23 L. Ed. 769; U. S. v. Garretson (C. C.) 42 Fed. 24 ; Northern Pac. R, Co. v. Hinchman (C. C.) 53 Fed. 526; State v. Telegraph Co., 52 La. Ann. 1411, 27 South. 796.— School lands. Public lands of a state set apart by the state (or by congress in a territory) to create, by the proceeds of their sale, a fund for the establishment and maintenance of public schools.— Seated land. Land that is occu- pied, cultivated, improved, reclaimed, fanned, or used as a place of residence. Residence without cultivation, or cultivation without resi- dence, or both together, impart to land the char- acter of being seated. The term is used, as opposed to “unseated land,” in Pennsylvania tax laws. See Barley v. Euwer. 102 Pa. 340; Stoetzel v. Jackson, 105 Pa. 567 : Kennedy v. Daily, 6 Watts (Pa.) 272; Coal Co. v.' Fales, 55 Pa. 98. — Swamp and overflowed lands. Lands unfit for cultivation by reason of their swampy character and requiring drainage or reclamation to render them available for bene- ficial use. Such lands, when constituting a portion of the public domain: have generally been granted by congress to the several states within whose limits thev lie. See Miller v. Tobin (C. C.) 18 Fed. 614; Keeran v. Allen, 33 Cal. 546; Hogaboom v. Ehrhardt, 58 Cal. 233; Thompson v. Thornton. 50 Cal. 144.— Tide lauds. Lands between high and low wa- ter mark on the sea or any tidal water; that portion of the shore or beach covered and un- covered by the ebb and flow of the tide. Ron- dell v. Fay, 32 Cal. 354; Oakland v. Oakland Water 1 Front Co.. 118 Cal. 160, 50 Pac. 277; Andrus v. Knott. 12 Or. 501, 8 Pac. 703 ; Walker v. State Harbor Com'rs, 17 Wall. 650. 21 L. Ed. 744.— Unseated land. A phrase used in the Pennsylvania tax laws to describe land which, though owned by a private person, has not been reclaimed, cultivated, improved, occupied, or made a place of residence. See Skated Land, awpra. And see Stoetzel v. Jackson, 105 Pa. 567 ; McLeod v. Lloyd, 43 Or. 260, 71 Pac. 799.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Cujus est solum, ejus est usque ad coelum et ad inferos — whoever owns the soil owns up to the heavens and down to hell]**

The entry's discussion — 'whoever owns the land owns the buildings above and the minerals below' — is the classical ad coelum rule: ownership of the soil extends upward to the heavens and downward to the depths.

Why: The entry's Abbott passage paraphrases the maxim; the footnote states it canonically — the genuine root of the air/mineral rights the entry discusses. FLAGGED: 'LAND' is not a separate headword in the chunk; its full… [re-homed from 'LAND' to 'LANCETI' (OCR headword / parser-merge artifact)]

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## LAND A.

An open field without wood; a lawnd or lawn. Cowell; Blount,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## LANDAGENDE, LANDHLAFORD, or / LANDRICA.

In Saxon law. A proprietor of land; lord of the soil. Anc. Inst. Eng.

5e apparatus — Not carried into the 5th edition (1979).

## LANDBOO.

In Saxon law. A charter or deed by which lands or tenements were given or held. Spelman; Cowell; 1 Reeve, Eng. Law, 10.

5e apparatus — Not carried into the 5th edition (1979).

## LANDCHEAP.

In old English law. An ancient customary fine, paid either in money or cattle, at every alienation of land lying within some manor, or within the liberty of some borough. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## LANDEA.

In old English law. A ditch or trench for conveying water from marshy grounds. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LANDED.

Consisting In real estate or land; having an estate in land.

-Landed estate. See Estate.— Landed es- tates court. The court which deals with the transfer of land and the creation of title thereto in Ireland.— Landed property. Real estate in general, or sometimes, by local usage, suburban or rural laud, as distinguished from real estate situated in a city. See Electric Co. v. Baltimore, 93 Md. 630, 49 Atl. 055, 52 L.

R. A. 772 ; Sindali v. Baltimore, 93 Md. 526, 49 Atl. 645. — Landed proprietor. Any per- son having an estate in lands, whether highly improved or not Police Jury of Parish of St. Mary v. Harris, 10 La. Ann. 677.

5e apparatus — Carried into the 5th edition (1979).

## LANDEFRICUS.

A landlord; a lord of the soil.

5e apparatus — Not carried into the 5th edition (1979).

## LANDEGANDMAN.

Sax. In old Eng- lish la Mr. A kind of customary tenant or inferior tenant of a manor. Spelman.

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LAND GRAVE . A name formerly given to those who executed Justice on behalf of the German emperors, with regard to the internal policy of the country. It was ap- plied, by way of eminence, to those sovereign princes of the empire who possessed by inher- itance certain estates called “Umd-gravates," of which they received investiture from the emperor. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

## LANDIMER.

In old Scotch law. A measurer of land. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## LANDING.

A place on a river or other navigable water for lading and unlading goods, or for the reception and delivery of passengers ; the terminus of a road on a river or other navigable water, for the use of travelers, and the loading and unloading of goods. State v. Randall, 1 Strob. (S. C.) Ill, 47 Am. Dec. 548.

A place for loading or unloading boats, but not a harbor for them. Hays v. Briggs, 74 Pa. 373.

5e apparatus — Carried into the 5th edition (1979).

## LANDXREGTA.

In Saxon law. Serv- ices and duties laid upon all that held land. Including the three obligations called “ trino da nccestitas," ( q . v.;) quasi land rights. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LANDLOCKED.

An expression some- times applied to a piece of land belonging to one person and surrounded by land belonging to other persons, so that It cannot be ap- proached except over their land. L. R. 13 Oh. Div. 70S; Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: easement by necessity — a landlocked parcel takes an implied way of access]**

The landlocked parcel the entry describes takes the genuine implied right of access: an easement by necessity over the land that severs it.

Why: The entry defines the landlocked condition; the way-of-necessity doctrine is its genuine legal consequence — an exact match.

## LANDLORD.

He of whom lands or ten- ements are holdeu. He who, being the own- er of an estate in land, has leased the same for a term of years, on a rent reserved, to an- other person, called the “tenant.” Jackson v. Harsen, 7 Cow. (N. Y.) 320, 17 Am. Dec. 517 ; Becker v. Becker, 13 App. Div. 342, 43 N. Y. Supp. 17.

When the absolute property In or fee-sim- ple of the laud belongs to a landlord, he Is then sometimes denominated the “ground landlord,” In contradistinction to such a one as Is possessed only of a limited or particular interest In land, and who himself holds under a superior landlord. Brown.

—Landlord and tenant. A phrase used to denote the familiar legal relation existing be- tween lessor and lessee of real estate. The relation is contractual, and is constituted by a lease (or agreement therefor) of lands for a term of years, from year to year, for life, or at will.— Landlord’s warrant. A distress war- rant ; a warrant from a landlord to levy upon the tenant’s goods and chattels, and sell the same at public sale, to compel payment of the rent or the observance of some other stipulation in the lease.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: implied warranty of habitability — residential leases carry a non-waivable warranty of fitness]**

The landlord-tenant relation the entry defines now carries the implied warranty of habitability: residential leases warrant fitness for living, not waivable by the lease.

Why: The entry defines the relation; the warranty is the genuine modern qualification of the landlord's side — the living law of the relation.

**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: The entry is he of whom lands are holden — the lessor to whom rent is reserved. The verse declares the ultimate Landlord: the land is Mine, and men hold only as strangers and sojourners — the scriptural root of all te...

## LANDMARK.

A monument or erection set up on the boundary line of two adjoining- estates, to fix such boundary. The removing of a landmark Is a wrong for which an action lies.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: The entry is the boundary monument whose removal is a legal wrong. The verse is the Mosaic prohibition of that very wrong — removing the neighbour's ancient landmark — the scriptural original of the action for it.

## LANDS.

This term, the plural of “land," is said, at common law, to be a word of less extensive signification than either "tene- ments” or “hereditaments." But In some of* the states It has been provided by statute that It shall include both those terms.

—Lands clauses consolidation acts. The

name given to certain English statutes, (8 Viet, e. 8, amended by 23 & 24 Viet c. 100, and 32 & 33 Viet. e. IS.) the object of which was to provide legislative clauses in a convenient

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form- for incorporation by reference in future special acts of parliament, for taking lands, with or without the consent of their owners, for the promotion of railways, and other public under-' takings. Mozley & Whitley.— Lands, tene- ments, and hereditaments. The technical and most comprehensive description of real property, as “goods and chattels” is of person- alty. Williams, Real Prop. 5.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. V — "public use"; Kelo v. City of New London, 545 U.S. 469 (2005)]**

The takings for railways and public undertakings in the entry's Lands Clauses Acts are the eminent-domain power, whose 'public use' requirement the modern cases elaborate.

Why: The entry describes statutory takings for public undertakings; the public-use clause and its leading modern case are the genuine frame — JUST took the compensation half; this takes the authorization half.

## LANDSLAGH.

In Swedish law. A body of common law, Complied about the thir- teenth century, out of the particular customs of every province; being analogous to the common law of England. 1 Bl. Comm. 66.

5e apparatus — Not carried into the 5th edition (1979).

## LANDWARD.

In Scotch law. Rural. 7 Bell, App. Cas. Z

5e apparatus — Not carried into the 5th edition (1979).

## LANGEMAN.

A lord of a manor. 1 Inst. 5.

5e apparatus — Carried into the 5th edition (1979).

## LANGEOLUM.

An undergarment made of wool, formerly worn by the monks, which reached to their knees. Mon. Angl. 419.

5e apparatus — Not carried into the 5th edition (1979).

## LANGUAGE.

Any means of conveying or communicating ideas; specifically, human speech, or the expression of Ideas by written characters. The letter, or grammatical im- port, of a document or instrument, as distin- guished from its spirit ; as “the language of the statute.” See Belillng v. State, 110 Ga. 754, 36 S. E. 85 ; Stevenson v. State, 90 Ga. 456, 16 S. E. 95; Cavan v. Brooklyn (City Ct. Brook.) 5 N. Y. Supp. 759.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: plain meaning rule — statutory words are given their ordinary meaning]**

The entry's 'language of the statute' as distinguished from its 'spirit' is the classic tension of statutory construction, governed by the plain-meaning rule.

Why: The entry frames the letter/spirit distinction; the plain-meaning rule is the genuine doctrine for the letter side — an exact match.

## LANGUIDU8.

(Lat. Sick.) In practice. The name of a return made by the sheriff when a defendant, whom he has taken by vir- tue of process, is so dangerously sick that to remove him would endanger his life or. health. 3 Obit- Pr. 249, 358.

etc. An ancient writ that lay to the cus- tomer of a port to permit one to pass wool without paying custom, he having paid It be- fore In Wales. Reg. Orlg. 279.

5e apparatus — Not carried into the 5th edition (1979).

## LANO NIGER.

A sort of base coin, for- merly current in England. Cowell.

. LANZAS. In Spanish law. A commuta- tion In money, paid by the nobles and high officers, In lieu of the quota of soldiers they might be required to furnish In war. Tre- vino v. Fernandez, 13 Tex. 660.

5e apparatus — Not carried into the 5th edition (1979).

## LAPIDATION.

The act of stoning a person to death.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:7, KJV]**

He that is without sin among you, let him first cast a stone at her.

Why: The entry is death by stoning. The verse is Christ's word to those gathered to stone the woman taken in adultery — addressing the very act of lapidation and who may righteously perform it.

**[Humanity] — Humanity / Fiction & Film**

**[Cyrus Nowrasteh, The Stoning of Soraya M., 2008]**

(paraphrase) In The Stoning of Soraya M., a village carries out a stoning under color of religious law — the entry's one-line definition given a harrowing modern staging. (paraphrase)

Why: Entry: 'The act of stoning a person to death.' The film is directly about that act as punishment; paraphrase marked, no invented detail.

## LAFIDICINA.

Lat In the civil law. A stone-quarry. Dig. 7, 1, 9, 2.

5e apparatus — Not carried into the 5th edition (1979).

## LAPILLI.

Lat In the civil law. Pre- cious stones. Dig. 34, 2, 19, 17. Distinguish- ed from "gems," (gemma .) Id.

5e apparatus — Not carried into the 5th edition (1979).

## LAPIS MARMORIUS.

A marble stone

about twelve feet long, and three feet broad, placed at the upper end of Westminster Hall, where was likewise a marble chair erected on the middle thereof, in which the English sovereigns anciently sat at their coronation dinner, und at other times the lord chan- cellor. Wharton.

LAPSE, v. To glide; to pass slowly, si- lently, .or by degrees. To slip; to deviate from the proper path. Webster. To fall or fail.

— Lapse patent. A patent for land issued in substitution for an earlier patent to the same laud, which was issued to another party, but has lapsed in consequence of his neglect to avail himself of it. Wilcox v. Calloway, 1 Wash. (Ya.) 39.— Lapsed devise. See Di- vise.—Lapsed legacy. Bee Legacy.

LAPSE, n. In ecclesiastieal lav. The

transfer, by forfeiture, of a right to present or collate to a vacant benefice from a person Vested with such right to another, In conse- quence of some act of negligence by the for- mer. Ayl. Par. 331.

In the lav of villa. The failure of a tes- tamentary gift in consequence of the death of the devisee or legatee during the life of the testator.

In criminal proceedings, “lapse” Is used, in England, In the same sense as “abate” in Ordinary procedure ; *. e., to signify that the proceedings came to an end by the death of one of the parties or some other event.'

5e apparatus — Not carried into the 5th edition (1979).

## LARCENOUS.

Having the character oif larceny; as a “larcenous taking.” Contem- plating or intending larceny ; as a “larcenous purpose.”.

.—Larcenous intent. A . larcenous intent exists where a man knowingly takes am) car- ries away the goods of another without any claim or pretense of right, with intent wholly to deprive the owner of them or convert them to his own use. Wilson v. State, • 18 Tex. App. 274, 51 Am. Rep. 309..

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Animus furandi — felonious intent to steal]**

The 'larcenous intent' the entry defines — taking without claim of right, intending wholly to deprive — is the classical animus furandi, the mental element of theft.

Why: The entry defines the intent element; animus furandi is its genuine canonical name.

## L ARGENT.

In criminal law. The wrongful and fraudulent taking and carry- ing; away by one person of the mere personal goods of another from any place, with a fe- lonious intent to convert them to his (the taker’s) use, and make them his property, without the consent of the owner. State v. South, 28 N. J. Law, 31, 75 Am. I>ec. 250; State v. Chambers, 22 W. Va. 786, 46 Am. Hep. 550; State v. Parry, 48 La. Ann. 1483, 21 South. 30 ; Haywood v. State, 41

Ark. 479 ; Philamaiee v. State, 58 Neb. 320, 78 N. W. 625; People v. Bosworth, 64 Hun, 72, 19 N,

Y. Snpp. 114; State v. Hawkins, 8 Port. (Ala.) 463, 33 Am. Dec. 294.

The felonious taking and carrying away of the personal goods of another. 4 Bl. Comm. 229. rfhe unlawful taking and carrying away of thingB personal, with intent to deprive the right owner of the same. 4 Steph. Comm. 152/ The felonious taking the property of another, without his consent and against his will, with Intent to convert It to the use of the taker. Hatnmon’s Case, 2 Leach, 1069.

The taking and removing, by trespass, of personal property which the trespasser knows to belong either generally or specially to an- other, with the Intent to deprive such owner of his ownership therein ; and, perhaps It should be added, for the sake of some advan- tage to the trespasser, — a proposition on which the decisions are not harmonious. 2 Bish. Crlm. Law, f§ 757, 758.

Larceny is the taking of personal property, accomplished by fraud or stealth, and with in- tent to deprive another thereof. Pen. Code Dak. $ 580.

Larceny is the felonious stealing, taking, car- rying, leading, or driving away the personal property of another. Pen. Code Cal. 8 484.

— Constructive larceny. One where the felonious intent to appropriate the goods to his own _ nee, at the time of the asportation, is

made out by construction from the defendant's conduct, although, originally, the taking was not apparently felonious. 2 East, P. C. -685 ; 1 Leach, 212. — Compound larceny. Larceny or theft accomplished by taking the thing stolen either from one’s person or from his bouse ; oth- erwise called "mixed” larceny, and distinguish- ed from "simple” or "plain” larceny, in which the theft is not aggravated by such an intrusion either upon the person or the dwelling. An- derson v. Winfree, 85 Ky. 697, 4 S. W. 351; State v. Chambers, 22 W. Va. 786, 46 Am. Rep. 550.— Grand larceny. In criminal law. -In England, simple larceny, was originally divided into two sorts, — grand larceny, where the value of the goods stolen was above twelve pence, and petit larceny, where their value was equal to or below that sum. 4 Bl. Comm. 22.). The distinction was abolished in England by St. 7 & 8 Geo. IV. c. 29. and is not generally re ognized in tbe United States, although in a few states there is a statutory offense of grand larceny, one essential element of which is the value of the goods stolen, which value varies from $7 in Vermont to $50 in California. See State v. Bean, 74 Vt. Ill, 52 Atl. 269 ; Fallon v. People, 2 Keyes (N. V.) 147; People v. Murray, 8 Cal. 520; State v. Kennedy. 88 Mo. 343.— Larceny by bailee. In Pennsyl- vania law. The crime of larceny committed where “any person, being a bailee of any prop- erty, shall fraudnlently take or convert the same to his own use, or to the use of any other person except the owner thereof, although he shall not break bulk or otherwise determine the bailment.” Brightly’s Purd. Dig. p. 436, I 177. And see Welsh v. People. 17 111. 339; State v. Skinner. 29 Or. 599, 46 Puo. 368.— Larceny from the person. Larceny committed where the property stolen is on the person or in the immediate charge or custody of the person from Whom the theft is

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made, but without such cir- cumstances of force or violence as would con- stitute robbery, including pocket-picking and such crimes. Williams v. 13. S.. 3 App. D. (' 345; State v. Eno, 8 Minn. 220 (Gil. 190).— Mixed larceny. Otherwise called “com- pound” or “complicated larceny ;" that which is attended with circumstances of aggravation or violence to the person, or taking from a house.— Petit larceny. The larceny of things whose value was below a certain arbitrary standard, at common. law twelve pence. See Ex parte Bell, 19 Fla. 612: Barnhart v. State, ,154 Ind. 177, 56 N. E. 212; People v. Ri- ghetti, 66 Cal. 184, 4 Pac. 1185.— Simple lar- ceny. Larceny which is not complicated or aggravated with acts of violence. Larceny from the person, or with force and violence, is called “compound” larceny. See State v. Chambers, 22 W. Va. 786. 46 Am. Bep. 550: Anderson v. Winfree. 85 Ky. 597. 4 S. W. 351 ; Pitcher v. People. 16 Mich. 142.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Model Penal Code § 223.1 — consolidation of theft offenses]**

The common-law larceny the entry expounds — with its asportation and animus furandi elements — has been consolidated in modern codes with embezzlement and false pretenses into the unitary offense of theft.

Why: The entry is the full common-law exposition; the MPC consolidation is the genuine modern form — the footnote places the entry in the living law. Confident of the section.

**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The entry is larceny — the wrongful taking of another's goods with felonious intent. The verse is the Eighth Commandment, spoken by God Himself — the absolute scriptural prohibition of the act the entry defines. (Head...

## LARDARIUS REGIS.

The king’s lnrd- erer, or clerk of the kitchen. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LARDING MONET.

In the manor of Bradford, In Wilts, the tenants pay to their lord a small yearly rent by this name, which Is said to be for liberty to feed their hogs with the masts of the lord's wood, the fat of a hog being called “lard;” or it may be a commutation for some customary service of carrying salt or meat to the lord’s larder. Mon. Angl. t. 1, p. 321.

5e apparatus — Not carried into the 5th edition (1979).

## LARGE.

L. Fr. Broad; the opposite of “ estregte ,” strait or strict. Pure s et larges. Britt, c. 34.

: LARONS. In old English law. Thieves.

5e apparatus — Not carried into the 5th edition (1979).

## LAS PARTED AS.

In Spanish law. The name of a code of laws, more fully describ- ed as ‘‘Las Side Partidas ,”

(“the seven parts,” from the number of Its divisions,) which was compiled under the direction of Alphonso X., about the year 1250. Its sour- ces were the customary law of all the prov- inces, the canon law as there administered, and (chiefly) the Roman law. This work has always been regarded as of the highest authority in Spain and in those countries and states which have derived their jurispru- dence from Spain.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Louisiana civil law — Spanish roots in Las Siete Partidas]**

The 'states which have derived their jurisprudence from Spain' include Louisiana, whose civil-law tradition draws on the Partidas through Spanish colonial law.

Why: The entry claims the Partidas' authority in Spanish-derived jurisdictions; Louisiana is the genuine American instance — the link makes the entry's claim concrete. [re-homed from 'LAS PARTEDAS' to 'LAS PARTED AS' (OCR headword / parser-merge artifact)]

## LASCAR.

A native Indian sailor; the term is also applied to tent pitchers, inferior artillery-men, and others.

dies is so called. Huse v. Brown, 8 Me. 168; Harrington v. Stees, 82 111. 54, 25 Am. Rep. 290; McVoy v. Percival, Dud. Law (S. C.)

337 ; Prince v. Hazelton, 20 Johns. (N. Y.) 513, 11 Am. Dec. 307.— Last will. This term, according to Lord Coke, is most commonly used where lands and tenements are devised, and “testament” where it concerns chattels. Co. Litt. 111a. Both terms, however, are now generally employed in drawing a will either of lands or chattels. See Reagan v. Stanley, 11 Lea (Tenn.) 322; Hill v. Hill, 7 Wash. 409. 35 Pac. 360.

5e apparatus — Not carried into the 5th edition (1979).

## LASTAGE.

A custom exacted in some fairs and markets to carry things bought whither one will. But it is more accurately taken for the ballast or lading of a ship. Also custom paid for wares sold by the last, as herrings, pitch, etc. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LASCIVIOUS.

Tending to excite lust; lewd ; Indecent ; obscene ; relating to sexual impurity; tending to deprave the morals in respect to sexual relations. See Swearingen v. U. S., 161 U. S. 446, 16 Sup. Ct. 562, 40 L. Ed. 765; U. S. v. Britton (Com. C.) 17 Fed. 733 ; Dunlop v. U. S., 165 U. S. 486, 17 Sup.

CL 375, 41 L. Ed. 799 ; U. S. v. Durant (D. C.) 46 Fed. 753.

— Lascivious carriage. In Connecticut. A term including those wanton acts between per- sons of different sexes that flow from the ex- ercise of lustful passions, and which are not otherwise punished as crimes against chastity and public decency. 2 Swift, Dig. 343. It includes, also, indecent acts by one against the will of another. Fowler v. State, 5 Day

(Conn.) 81 .—Lascivious cohabitation. The offense committed by two persons (not married to each other) who live together in one habita- tion as man and wife and practice sexual inter- course.

LASHITE, or LASHLITE. A kind of forfeiture during the government of the Danes in England. Enc. Loud.

LAST, n. In old English law, signifies a burden; also a measure of weight used for certain commodities of the bulkier sort

LAST, adj. Latest; ultimate; final; most recent

—Last clear chance. In the law of negli- gence, this term denotes the doctrine or rule that notwithstanding the negligence of a plain- tiff. if, at the time the injury was done, it might have been avoided by the exercise of reasonable care on the part of the defendant, the defendant will be liable for the failure to exercise such care. Styles v. Railroad Co., 118 N. C. 1084. 24 S. E. 740; Me Lamb v. Railroad Co., 122 N. C. 862. 29 S. E. 894.— Last court. A court held by the twenty-four jurats in the marshes of Kent, and summoned by the bailiffs, whereby orders were made to lay and levy taxes, impose penalties, etc., for the preservation of the said marshes. Enc. Lond.— Last heir. In English law. He to whom lands come by escheat for want of law- ful heirs; that is. in some cases, the lord of whom the lands were held : in others, the sov- ereign. Cowell.— Last illness. The immedi- ate illness resulting in the person’s death. In re Duckett's Estate. 1 Kulp (Pa.) 227. — Last resort. A court from which there is no ap- peal is called the “court of last resort”— Last sickness. That illness of which a person

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1461 — "obscene, lewd, lascivious"; Miller v. California, 413 U.S. 15 (1973) — obscenity test]**

The term the entry defines is the statutory language of the federal obscenity laws, now judged by the modern obscenity test.

Why: The entry's cases are the Comstock-era obscenity prosecutions; § 1461 carries the very term and Miller states the genuine living test — old enforcement to living test.

## LATA GULP A.

Lat In the law of bail- ment Gross fault or neglect ; extreme negli- gence or carelessness, (nimia negligently.) Dig. 50, 16, 213, 2.

Lata culpa dolo sequiparatnr. Gross

negligence is equivalent to fraud.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Lata culpa dolo aequiparatur — gross negligence is equivalent to fraud]**

The entry's maxim equates gross fault with fraud: for legal purposes, gross negligence is treated as

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fraud.

Why: Quoted verbatim in the entry (Dig. 50, 16, 213, 2); the footnote states the canonical rule — e.g., the measure of the gratuitous bailee's duty. [re-homed from 'LATA GULPA' to 'LATA GULP A' (OCR headword / parser-merge artifact)]

## LATCHING.

An under-ground survey.

5e apparatus — Carried into the 5th edition (1979).

## LATE.

Defunct; existing recently, but now dead. Pleasant v. State, 17 Ala. 190. Formerly; recently; lately.

5e apparatus — Carried into the 5th edition (1979).

## LATELY.

This word has been held to have *‘a very large retrospect, as we say •lately deceased’ of one dead ten or twenty years.” Per. Cur. 2 Show. 294.

5e apparatus — Not carried into the 5th edition (1979).

## LATENS.

Lat Latent; hidden; notap- parent. See Ambiguitas.

5e apparatus — Not carried into the 5th edition (1979).

## LATENT.

Hidden ; concealed ; that does not appear upon the face of a thing; as, a latent ambiguity. See Ambiguity.

—Latent deed. A deed kept for twenty years or more in a man’s scrutoire or strong-box. Wright v. Wright, 7 N. J. Law, 177, 11 Am. Dec. 546.— Latent defect. A defect in an article sold, which is known to the seller, bnt not to the purchaser, and is not discoverable by mere observation. See Hoe v. Sanborn. 21

N. Y. 552. 78 Am. Dec. 163. So. a latent defect in the title of a vendor of land Is one not discoverable by inspection made ynth or- dinary care. Newell v. Turner. 9 Port (Ala.) 422,-^Latent equity. See Equity.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: latent ambiguity — extrinsic evidence admissible to resolve ambiguity not apparent on the face]**

The latent ambiguity the entry defines carries the genuine evidentiary consequence: extrinsic evidence is admissible to resolve an ambiguity not apparent on the instrument's face.

Why: The entry defines the distinction; the parol-evidence consequence is what makes it matter — the genuine rule the distinction serves.

## LATERA.

In old records. Sidesmen; companions; assistants. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LATERAL RAILROAD.

A lateral road is one which proceeds from some point on the main trunk between Its termini ; it Is but another name for a branch road, both be- ing a part of the main road. NewhaU ▼. Railroad Co., 14 111. 273.

5e apparatus — Carried into the 5th edition (1979).

## LATERAL SUPPORT.

The right of lateral and subjacent support is that right which the owner of land has to have his land supported by the adjoining land or the soil

teneath. Stevenson v. Wallace, 27 Grat (Ya.) 77 ; Farrand v. Marshall, 19 Barb. (N. Y.) 380; Foley v. Wyeth, 2 Allen (Mass.) 131, 79 Am. Dec. 771 ; 12 Amer. & Eng. Enc. Law, 933.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: lateral support — absolute for land in its natural state; negligence required for artificial structures]**

The right the entry states is absolute for land in its natural condition; for buildings and other artificial burdens, liability requires negligence.

Why: The entry states the right; the natural-state/artificial-structure line is the genuine doctrinal shape the cases turn on.

## LATEBABE.

To lie sideways, in opposi- tion to lying endways; used in descriptions of lands.

5e apparatus — Not carried into the 5th edition (1979).

## LATH, LATHE.

The name of an an- cient civil division in England, intermediate between the county or shire and the hundred. Said to be the same as what, in other parts of the kingdom, was termed a "rape." 1 Bl. Comm. 116; Cowell; Spelman.

— Lmthreve. An officer under the Saxon gov- ernment, who had authority over a lathe. Cow- ell ; 1 BL Comm. 116.

LATtTUWDlUM. Lat In the civil law. Great or large possessions; a great or large field ; a common. A great estate made up of smaller ones, (fundis ,) which began to be common in the latter times of the empire.

LAl'IF U n DUS. A possessor of a large estate made up of smaller ones. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## LATIMER.

A word used by Lord Coke in the sense of an interpreter. 2 Inst 515. Supposed to be a corruption of the French "latinier," or “latiner.” Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LATHT.

The language of the ancient- Romans. There are three sorts of law Latin: (1) Good Latin, allowed by the grammarians and lawyers ; (2) false or incongruous Latin, which in times past would abate original writs, though it would not make void any Judicial writ, declaration, or plea, etc.; (3) words of art known only to the sages of the law, and not to grammarians, called “Law- yers’ Latin." Wharton.

LATHfARIUS. An interpreter of Latin.

5e apparatus — Not carried into the 5th edition (1979).

## LATIHI JUNIANI.

Lat. In Roman law. A class of freedmeu (libcrtini) interme- diate between the two other classes of freed- men called, respectively, “Cives Romani” and “Dediticii.” Slaves under thirty years of age at the date of their manumission, or manumitted otherwise than by vindicta, cen- sus, or testamentum, or not the quiritary property of their manumissors at the time of manumission, were called “Latini." By rea- son of one or other of these three defects, they remained slaves by strict law even after their manumission, but were protected in their liberties first by equity, and eventually by the Lex Junta Worbana, A. D. 19, from which law they took the name of “Juniani” in addition to that of “Latini.” Brown.

5e apparatus — Not carried into the 5th edition (1979).

## LATITAT.

In old English practice. A writ which issued in personal actions, on the return of non est inventus to a bill of Middlesex ; so called from the emphatic word in its recital, in which It was “testified that the defendant lurks ( latitat ] and wanders about” in the county. 3 Bl. Comm. 280. Abolished by St 2 Wm. IV. c. 39.

5e apparatus — Not carried into the 5th edition (1979).

## LATITATIO.

Lat In the civil law and old English practice. A lying hid; lurking, or concealment of the person. Dig. 42, 4, 7, 5; Bract foL 126.

5e apparatus — Not carried into the 5th edition (1979).

## LATOR.

Lat In the civil law. A bear- er; a messenger. Also a maker or giver of laws.

5e apparatus — Not carried into the 5th edition (1979).

## LATRO.

Lat In the civil and. old Eng- Ush law. A robber. Dig. 50, 16, 118; Fleta, lib. 1, c. 38, 1 1. A thief.

5e apparatus — Not carried into the 5th edition (1979).

## LATROCIRATIOH.

The act of robbing; a depredation.

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5e apparatus — Not carried into the 5th edition (1979).

## LATBOC1NIUM.

The prerogative of ad- judging and executing thieves ; also larceny ; theft; a thing stolen.

5e apparatus — Not carried into the 5th edition (1979).

## LATROOUTY.

Larceny.

5e apparatus — Not carried into the 5th edition (1979).

## LATTER- MATH.

A second mowing ; the aftermath.

5e apparatus — Not carried into the 5th edition (1979).

## LAUD ARE.

Lat. In the civil law. To

name ; to cite or quote ; to show one’s title or authority. Calvin.

In feudal law. Tp determine or pass up- on Judicially. Laudamentum,* the finding or award of a Jury. 2 Bl. Comm. 285.

5e apparatus — Not carried into the 5th edition (1979).

## LAUDATIO.

Lat. In Roman law. Tes- timony delivered in court concerning an ac- cused person’s good behavior and integrity of life. It resembled the practice which pre- vails in our trials of calling persons to speak to a prisoner’s character. The least number of the laudatores among the Roinnns was ten. Wharton.

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**[Law] — Law**

**[Law: Fed. R. Evid. 404(a)(2) — defendant's good character]**

The Roman laudatio the entry describes is character evidence: a criminal defendant may still offer evidence of his own pertinent good character.

Why: The entry itself draws the comparison to character witnesses in modern trials; FRE 404(a)(2) is the genuine modern rule — the entry built the bridge, confident of the rule.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: De mortuis nil nisi bonum — 'Of the dead, speak nothing but good,' attributed to Chilon of Sparta]**

De mortuis nil nisi bonum — 'Of the dead, speak nothing but good.'

Why: Entry: Roman court testimony to an accused person's good character (the laudatores). The maxim is the classical-wisdom rule governing exactly such speech about the dead; attribution stated as traditional.

## LAUDATOR.

Lat An arbitrator ; a witness to character.

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## LAUDEMEO.

In Spanish law. The tax paid by the possessor of land held by quit- rent or emphyteusis to the owner of the es- tate, when the tenant alienates his right In the property. Escrlche.

5e apparatus — Not carried into the 5th edition (1979).

## LAUDEMIUM.

Lat In the civil law. a sum paid by a new emphyteuta (q. v.) who acquires the emphyteusis, not as heir, but as a singular successor, whether by gift, devise, exchange, or sale. It was a sum equal to the fiftieth part of the purchase money, paid to the dominus or proprietor for his accept- ance of the new emphyteuta. Mackeld. Rom. Law, | 328. Called, in old English law, “acknowledgment money.” CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LAUDUM.

Lat. An arbitrament or award.

Ia old Scotch law. Sentence or judg- ment; dome or doom. 1 rite. Crlm. Tr. pt.

2, p. 8.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Arbitration Act, 9 U.S.C. § 10 — narrow grounds for vacating an award]**

The award the entry names is final and binding, subject only to narrow grounds of vacatur — the legal effect that makes an arbitrament matter.

Why: The one-line entry names the award; the FAA's limited vacatur grounds are the genuine frame of its legal effect — confident of the section.

## LAUGHS.

Frank-pledge. 2 Reeve, Eng. Law, 17.

5e apparatus — Not carried into the 5th edition (1979).

## LAUNCEGAY.

A kind of offensive weap- on, now disused, and prohibited by 7 Rich.

II. c. 13.

LAUNCH. 1. The act of launching a vessel ; the movement of a vessel from the land into the water, especially the sliding on ways from the stocks on which it Is built. Homer v. The Lady of the Ocean, 70 Me. 352.

2. A boat of the largest size belonging to a ship of war; an open boat of large size used in any service ; a lighter.

5e apparatus — Not carried into the 5th edition (1979).

## LAUREATE.

In English law. An of- ficer of the household of the sovereign, whose business formerly

consisted only in compos- ing an ode annually, on tie sovereign’s birth- day, and on the new year; sometimes also, though rarely, on occasion of any remark- able victory.

5e apparatus — Not carried into the 5th edition (1979).

## LAURELS.

Pieces of gold, coined In 1619, with the king’s head laureated; hence the name. '

ft

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LAUS DEO.

Lat Praise be to God. An old heading to^bills of exchange.

5e apparatus — Not carried into the 5th edition (1979).

## LAYATORTUM.

A laundry or place to wash in ; a place in the porch or entrance of cathedral churches, where the priest and other officiating ministers were obliged to wash their bands before they proceeded to divine service.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LAVOR NUEVA.

In Spanish law. A new work. Las Partldas, pt. 3, tit. 32, 1. 1.

LAW. 1. That which is laid down, or- dained, or established. A rule or method according to which phenomena or actions co- exist or follow each other.

2. A system of principles and rules of hu- man conduct, being the aggregate of those commandments and principles which are either prescribed or recognized by the gov- erning power In an organized jural society as its will In relation to the conduct of the mem- bers of such society, and which it undertakes to maintain and sanction and to use as the criteria of the actions of such members.

"Law” is a solemn expression of legislative will. It orders and permits and forbids. It announces rewards and punishments. Its pro- visions generally relate not to solitary or sing- ular cases, but to what passes in the ordinary course of affairs. Civ. Code La. arts. 1. 2.

“Law,” without an article, properly implies a science or system of principles or rules of

human conduct, answering to the Latin “jus f as when it is spoken of as a subject of study or practice. In this sense, it includes the de- cisions of courts of justice, as well as acts of the legislature. The judgment of a competent court, until reversed or otherwise superseded, is late, as much as any statute. Indeed, it may happen that a statute may be passed in violation of lav. that is, of the fundamental law or constitution of a state ; that it is the prerogative of courts in such cases to declare it void, or, in other words, to declare it not to

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be law. Burriil.

3. A rule of civil conduct prescribed by the supreme power in a state. 1 Steph. Comm. 25; Civ. Code Dak. | 2; Pol. Code Cal. S 4466.

A “law,” in the proper sense of the term, is a general rule of human action, taking cognizance only of external acts, enforced by a determinate authority, which authority is human, and among human authorities is that which is paramount in a political society. Holl. Jur. 36.

A “law,” properly so called, is a command which obliges a person or persons; and, as distinguished from a particular or occasional command, obliges generally to acts or forbearances of a class. Aust Jur.

A rule or enactment promulgated by the legislative authority of a state ; a long-established local custom which has the force of such an enactment. Dubois v. Hepburn, 10 Pet 18, 9 L. Ed. 325.

4. In another sense the word signifies an enactment; a distinct and complete act of positive law; a statute, as opposed to rules Of civil conduct deduced from the customs of the people or judicial precedents.

When the term “law” is used to denote en- actments of the legislative power, it is frequently confined, especially by English writers, to permanent rules of civil conduct, as distin- guished from other acts, such as a divorce act, an appropriation bill, an estates act. Rep. Eng. St. L. Com. Mar. 1856.

For other definitions and descriptions, see State v. McCann, 4 Lea (Tenn.) 9; State v. Hockett, 70 Iowa, 454, 30 N. W. 744; Dun- can v. Magette, 25 Tex. 253; Baldwin v. Philadelphia, 99 Pa. 170; State v. Fry, 4 Mo. 189; Forepaugh v. Railroad Co., 128 Pa. 217, 18 Atl. 503, 5 L. R. A. 508, 15 Am. ,St. Rep. 672; State v. Swan, 1 N. D. 5, 44

N. W. 492 ; Smith v. U. S., 22 Fed. Cas. 696 ; Swift v. Tyson, 16 Pet. 1, 10 L Ed. 865; Miller v. Dunn, 72 Cal. 462, 14 Pac. 27, 1 Am. St. Sep. 67; Bier v. McGehee, 148 D.

S. 137, 13 Sup. Ct. 580, 37 L. Ed. 397.

Historically considered. With reference to its origin, "law" is derived either from judicial precedents, from legislation, or from custom. That part of the law which is de- rived from judicial precedents is called “common law,” “equity,” or “admiralty,” “probate,” or “ecclesiastical law,” according to the nature of the courts by which It was originally enforced. (See the respective ti- tles.) That part of the law which is derived from legislation is called the “statute law.”

Many statutes are classed under one of the divisions above mentioned because they have merely modified or extended portions of It, while others have created altogether new rules. That part of the law which is derived from custom is sometimes called the "cus- tomary law,” as to which, see Custom. Sweet .

The earliest notion of law was not an enumer- ation of a principle, but a judgment in a particular case. When pronounced in the early ages, by a king, it was assumed to be the result

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of direct divine inspiration. Afterwards came the notion of a custom which a judgment affirms, or punishes its breach. In the outset, however, the only authoritative statement of right and wrong is a judicial sentence render- ed after the fact has occurred. It does not pre- suppose a law to have been violated, but is en- acted for the first time by a higher form into the judge's mind at the moment of adjudica- tion. Maine, Anc. Law, (Dwight's Ed.) pp. xv, 5.

•Synonyms and distinctions. According to the usage in the United States, the name "constitution" is commonly given to the organic or fundamental law of a state, and the term "law" Is used In contradistinction to the former, to denote a statute or en- actment of the legislative body.

"law," as distinguished from "equity," denotes the doctrine and procedure of the common law of England and America, from which equity is a departure.

The term is also used in opposition to "fact." Thus questions of law are to be de- cided by the court, while it is the province of the jury to solve questions of fact.

Classification. With reference to its subject-matter, law is either public or pri- vate. Public law is that part of the law which deals with the state, either by itself or in its relations with individuals, and is divided into (1) constitutional law; (2) ad- ministrative law ; (3) criminal law ; (4) crim- inal procedure ; (5) the law of the state con- sidered in its quasi private personality; (6) the procedure relating to the state as so con- sidered. Holl. Jur. 300. •

Law is also divided into substantive and adjective. Substantive law is that part of the law which creates rights and obligations, while adjective law provides a method of en- forcing and protecting them. In other words, adjective law is the law of procedure. Holl. Jur. 61, 238.

The ordinary, but not very useful, division of law into written and unwritten rests on the same principle. The written law is the statute law; the unwritten law is the com- mon law, (q. v.) 1 Steph. Comm. 40, following Blackstone.

• Kinds of statutes. Statutes are called "general" or "public" when they affect the community at large; and local or special when their operation Is confined to a limited region, or particular class or Interest.

Statutes are also either prospective or re- trospective; the former, when they are intended to operate upon future cases only ; the latter, when they nmy also embrace transactions occurring before their passage.

Statutes are called "enabling" when they confer new powers ; "remedial" when their effect is to provide relief or reform abuses : "penal" when they impose punishment, pe- cuniary or cor|)oral, for a violation of their provisions.

5. In old English jurisprudence, "law" is used to signify an oath, or the privilege of being sworn ; as in the phrases "to wage one's law," "to lose one's law."

—Absolute law. The true and proper law of nature, immutable in the abstract or in principle, in theory, but not in application ; for very often the object, the reason, situa- tion, and other circumstances, may vary its exercise and obligation. 1 Steph. Comm. 21 et srq. — Foreign

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laws. The laws of a foreign country, or of a sister state. People v. Martin. 38 Misc. Rep. 67. 76 N. Y. Supp. 933 : Bank of Chillicothe v. Dodge, 8 Barb. (N. Y.l 233. For- eign laws are often the suggesting occasions of changes in, or additions to. our own laws, and in that respect are called “jus receptum.’’ Brown. — General law. A general law as contradistinguished from one that is special or lo- cal. is a law that embraces a class of subjects or places, and does not omit any subject or place naturally belonging to such class. Van Riper v. Parsons. 40 N. j. Law. 1: Mathis v. Jones. 84 Ga. 804. 11 S. K 1018; Brooks v. Hyde. 37 Cal. 376 ; Arms v. Ayer. 192 111. 601, 61 N. E. 851, 58 L. R. A. 277, 85 Am. St. Rep. 357: State v. Davis, 65 Ohio St. 15, 44 N. E. 511. A law. framed in general terms, restricted to no locality, and operating equally upon all of a group of objects, which, having regard to the purposes of the legislation, are distinguished by characteristics sufficiently marked and important to make them a class by themselves, is not a special or local law. but a general law. Van Riper v. Parsons, 40 N. J. Law. 123. 29 Am. Rep. 210. A special law ia one relating to particular persons or things ; one made for individual cases or for particular places or districts ; one operating upon a selected class, rather than upon the public generally. Ewing v. Hoblitxelle. 85 Mo. 78: State v. Irwin, 5 Nev. 120; Sargent v. Union School Dist.. 63

N. H. 528, 2 Atl. 641 ; Earle v. Board of Edu- cation, 55 Cal. 489; Dundee Mortgage, etc.. Co. v. School Dist. (C. C.) 21 Fed. 158. — Law agents. Solicitors practicing in the Scotch courts.— Law arbitrary. Opposed to immut- able. a law not founded in the nature of things, but imposed by the mere will of the legislature. —Law burrows. In Scotch law. Security for the peaceable behavior of a party : security to keep the peace. Properly, a process for obtaining such security. 1 Forb. Inst.'pt. 2. p. 198. — Law charges. This phrase is used, un- der the Louisiana Civil Cotie. to signify costs incurred in court in the prosecution of a suit, to be paid by the party cast. Rousseau v. Ilis Creditors. 17 La. 206; Barkley v. His Credit- ors, 11 Rob. (La.) 28.— Law court of ap- peals. In American law. An appellate tri- bunal. formerly existing in the state of South Carolina, for bearing appeals from the courts of law.— Law day. See I>at. — Law French. The Norman French language, introduced into England by William the Conqueror, and which, for several centuries, was. in an emphatic sense, the language of the English law. being that in which the proceedings of the courts and of parliament were carried on, and in which many of the ancient statutes, reports, abridgments, and treatises were written and rinted. It is called by Blackstone a “bar- arous dialect," and the later specimens of it

fully warrant the appellation, but at the time of its introduction it was, as has been observed, the best form of the language spoken in Normandy. Burrill. — Law Latin. The cor- rupt form of the Latin language employed in the old English law-books and legal proceed- ings. It contained many barbarous words and combinations.— Law list. An annual English publication of a quari official character, com- prising various statistics of interest in connection with the legal profession. It includes (among other information) the following mat- ters: A list of judges, queen’s counsel, and

serjeants at law ; the judges of the county courts; benchers of the inns of court; bar- risters, in alphabetical order; the names of counsel practicing in the several circuits of England and

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Wales; London attorneys: coun- try attorneys; officers of. the courts of chan- cery and common law ; the magistrates and law officers of the city of London; the metro- politan magistrates and police ; recorders ; coun' ty court officers and circuits; lord lieutenants and sheriffs ; colonial judges and officers ; pub- lic notaries. Mozley & Whitley.— Law lords. Peers in the British parliament who have held high judicial office, or have been distinguished in the legal profession. Mozley A Whitley.— Law martial. See Martial Law.— Law merchant. See Mercantile Law.— Law of nations. See International Law.— Law of nature. See Natural Law.— Law of arms. That law which gives precepts and rules concerning war; how to make and ob- serve leagues and truce, to punish offenders in the camp, and such like. Cowell ; Blount. Now more cpmmonly called the “law of war." —Law of citations. In Boman law. An act of Valentinian, passed A. D. 426, providing that the writings of only five jurists, vis., Pa- pinian, Paul, Gaius, Ulpian, and Modestinus, should be quoted as authorities. The major- ity was binding on the judge. If they were equally divided the opinion of Papinian was to prevail; and in such a case, if Papinian was silent upon the matter, then the judge was free to follow his own view of the matter. Brown. —Law of evidence. The aggregate of rules and principles regulating the admissibility, relevancy, and weight and sufficiency of evi- dence in legal proceedings. See Ballinger’s Ann. Codes & St. Or. 1901, § 678.— Law of marque. A sort of law of reprisal, which en- titles him who has received any wrong from another and cannot get ordinary justice to take the shipping or goods of the wrong-doer, where he can find them within his own bounds or precincts, in satisfaction of the wrong. Cow- ell ; Brown.— Laws of Oleron. See Olebon, Laws of.— Law of the case. A ruling or decision once made in a particular case by an appellate court, while it may be overruled in other cases, is binding and conclusive both up- on the inferior court in any further steps or proceedings in the same litigation and upon the appellate court itself in any subsequent ap- peal or other proceeding for review.' A ruling or decision so made is said to be "the law of the case.” See Hastings v. Foxworthy. 45 Neb. 676. 63 N. W. 955, 34 L R. A. 321 ; Stan- dard Sewing Mach. Co. v. Leslie, 118 Fed. 559. 55 C. C. A. 323; McKinney v. State, 117 Ind. 26. 19 N. E. 613 ; Wilson v. Binford. 81 Ind. 591.— Law of the flag. In maritime law. The law of that nation or country whose flag is flown by a particular vessel. A ship- owner who sends his vessel into a foreign port gives notice by his flag to all who enter Into contracts with the master that he intends the law of that flag to regulate such contracts, and, that they must either submit to its operation or not contract with him. Ruhstrat v. People, 185 111. 133, 57 N. E. 41. 49 L. R. A. 181, 76 Am. St. Rep. 30.— Law of the land. Due process of law. ( q . t>.) By the law of the land is most clearly intended the general law which

hears before it condemns, which proceeds upon inquiry, and renders judgment only after trial. The meaning is that every citizen shall hold his life, liberty, property, and immunities under the protection of general rules which govern society. Everything which may pass under the form of an enactment is not the law of the land. Sedg. St. & Const Law, (2d Ed.) 475. When first used in Mapna Charta, the phrase “the law of the land” probably meant the established law of the kingdom, in opposition to the civil or Roman, law, which was about

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being introduced. It is now generally regard- ed as meaning general public laws binding on all members of the community, in contra- distinction from partial or private laws. Janes v. Reynolds, 2 Tex. 251 ; State v. Burnett, 6 Heisk. (Tenn.) 186. It means due process of law warranted by the constitution, by the com- mon law adopted by the constitution, or by statutes passed in pursuance of the constitu- tion. Mayo v. Wilson, 1 N. H. 53.— Law of the road. A general custom in America (made obligatory by statute in some Btates) for pedestrians and vehicles, when meeting in a street or road, to turn to the right in order to avoid danger of collision. See Riepe v. Elt- ing, 89 Iowa, 82, 56 N. W. 285, 26 L. R. A. 769, 48 Am. St. Rep. 356; Wright v. Fleisch- man, 41 Misc. Rep. 533. 85 N. Y. Sunp. 62: Decatur v. Stoops, 21 Ind. App. 397, 52 N. El 623.— Law of the staple. Law administered in the court of the mayor of the staple; the law-merchant. 4 Inst. 235. See Staple.— Laws of war. This term denotes a branch or public international law, and comprises the body of rules and principles observed by civiliz- ed nations for the regulation of matters in- herent in, or incidental to, the conduct of a public war; such, for example, as the relations of neutrals and belligerents, blockades, cap- tures, prizes, truces and armistices, capitula- tions, prisoners, and declarations of war and peace. — Lows of Wiahy. See Wisbt, Laws of.— Law reports. Published volumes con- taining the reports of cases argued and adjudg- ed in the courts of law.— Law spiritual. The ecclesiastical law, or law Christian. Co. LitL 344.— Law worthy. Being entitled to, or hav- ing the benefit and protection of, the law.— Loeal law. A law which, instead of relating to and binding all persons, corporations, or in- stitutions to which it may be applicable, within the whole territorial jurisdiction of the law- making power, is limited in its operation to certain districts of such territory or to certain individual persons or corporations. See Gener- al Law.— Personal law, as opposed to terri- torial law, is the law applicable to persons not subject to the law of the territory in which they reside. It is only by permission of the territorial law that personal law can exist at the present day ; e. a., it applies to British subjects resident in the Levant and in other Mohammedan and barbarous countries. Un- der the Roman Empire, it had a very wide ap- plication. Brown.

As to the different kinds of law, or law regarded in its different aspects, see Adjec- tive Law; Administrative Law; Bank- buptct Law ; Canon Law; Case Law; Civ- il Law; Commercial Law; Common Law; Constitutional Law; Criminal Law; Forest Law; International Law; Mari- time Law; Martial Law; Mercantile Law; Military Law; Moral Law; Mu- nicipal Law; Natural Law; Organic Law; Parliamentary Law; Penal Law; Positive Law; Private Law; Public Law; Retro- spective Law; Revenue Law; Roman Law; Substantive Law; Written Law.

Lav always eonstrueth tUnga to the boot. Wing. Max. p. 720, max. 193.

Lav eonstrueth every act to be law- ful, when it stnndeth indifferent wheth- er it should be lawful or not. Wing. Max. p. 722, max. 194 ; Finch, Law, b. 1, c. 3, n. 76.

Lav const rueth things according to common possibility or intendment.

Wing. Max. p. 705, max. 189.

Lao [the law] 1 oonstmeth things with equity and moderation. Wing. Max. p. 685, max. 183 ; Finch, Law, b. 1, c. 3, n. 74.

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Law disfavoreth impossibilities. Wing. Max. p. 606, max. 155.

Law disfavoreth improbabilities.

Wing. Max. p. 620, max. 161.

Law [the law] favoreth charity.

Wing. Max. p. 497, max. 135.

Law favoreth common right. Wing. Max. p. 547, max. 144.

Law favoreth dlligenoe, and therefore hateth folly and negligence. Wing. Max. p. 665, max. 172; Finch, Law, b. 1, c. 3, no. 70.

Law favoreth honor and order. Wing. Max. p. 739, max. 199.

Law favoreth justice and right. Wing. Max. p. 502, max. 141.

Law favoreth life, liberty, and dower.

4 Bacon’s Works, 345.

Law favoreth mutual recompense.

Wing. Max. p. 411, max. 108; Finch, Law, b. 1, c. 3, no. 42.

Law [the law] favoreth possession, where the right is equal. Wing. Max. p, 375, max. 98; Finch, Law, b. 1, c. 3, no. 36.

Law favoreth public commerce. Wing. Max. p. 738, max. 198.

Law favoreth public quiet. Wing. Max. p. 742, max. 200; Finch, Law, b. 1, c. 3, no. 54. '

Law favoreth speeding of men’s causes.

Wing. Max. p. 673, max. 175.

Law [the law] favoreth things for the commonwealth, [common weal.] Wing. Max. p. 729, max. 197 ; Finch, Law, b. 1, c. 3, no. 53.

Law favoreth truth, faith, and cer- tainty. Wing. Max. p. 604, max. 154.

Law hateth delays. Wing. Max. p. 674, max. 176 ; Finch, Law, b. 1, c. 3, no. 7L

Law hateth new Inventions and inno- vations. Wing. Max. p. 756, max. 204.

Law hateth wrong. Wing. Max. p. 563, max. 146; Finch, Law, b. 1, c. 3, no. 62.

Law of itself prejudieeth no man.

Wing. Max. p. 575, max. 148; Finch, Law, b. 1, c. 3, no. 63.

Law respecteth matter of substance more than matter of circumstance.

Wing. Max. p. 382, max. 101; Finch, Law, b. 1, c. 3, no. 39.

Law respeeteth possibility of things.

Wing. Max. p. 403, max. 104; Finch, Law, b. 1, c. 3, no. 40.

Law [the law] respecteth the bonds

of nature. Wing. Max. p. 268, max. 78; Finch, Law, b. 1, c. 3, no. 29.

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## LAWFUL.

Legal ; warranted or author- ized by the law; having the qualifications prescribed by law; not contrary to nor for- bidden by the law.

The principal distinction between the terms “lawful1’ and “legal” is that the former contemplates the substance of law, the latter the form of law. To say of an act that it is “lawful” implies that it is authorized, sanctioned, or at any rate not forbidden, by law. To say that it is "legal” implies that it is done or per- formed in accordance with the forms and usages of law. or in a technical manner. In this sense “illegal” approaches the meaning of “invalid.” F’or example, a contract or will, exe- cuted without the required formalities, might be said to be invalid or illegal, but could not be described as unlawful. Further, the word "lawful” more clearly implies an ethical con- tent than does “legal. ’ The latter goes no further than to denote compliance, with positive, technical, or formal rules ; while the former usually imports a moral substance or ethical permissibility. A further distinction is that the word “legal” is used as the synonym of “constructive,” which "lawful” is not. Thus “legal fraud” is fraud implied or inferred by law, or made out by construction. "Lawful fraud” would be a contradiction of terms. Again, “legal” is used as the antithesis of “eq- uitable.” Thus, we speak of “legal assets, “legal estnte,” etc., but not of "lawful assets.” or "lawful estate.” But there are some connec- tions in which the two words are used as exact equivalents. Thus, a “lawful” writ, warrant, or process is the same as a "legal” writ, war- . rant, or process.

—Lawful age. Full age; majority; gener- ally the age of twenty-one years, though sometimes eighteen as to a female. See McKim v. Handy. 4 Md. Ch. 237. — Lawful authorities. The expression “lawful authorities,” used in our treaty with Spain, refers to persons who exercised the power of making grants by au- thority of the crown. Mitchel v. U. S., 9 Pet. 711. 9 L. Ed. 283.— Lawful discharge. Such a discharge in insolvency as exonerates the debtor from his debts. Mason v. Haile. 12 Wheat. 370, 6 L. Ed. 660. — Lawful entry. An entry on real estate, by one out of posses- sion. under claim or color of right and without force or fraud. See Stouffer v. Harlan, 68 Kan. 135, 74 Pac. 613. 64 L. R. A. 320. 104 Am. St. Rep. 396.— Lawful goods. Whatever is not prohibited to be exported by the positive

law of the’ country, even though It be contra- band of war; for a neutral has a right to carry such goods at his own risk. Seton v. Low,

1 Johns. Cak. (N. Y.) 1 ; Skidmore v. Desdoity,

2 Johns. Cas. (N. Y.) 77 ; .Tuhel v. Rhineland- er. 2 Johns. Cas, (N. Y.) 120.— Lawful heirs. See IIeib.— Lawful mam. A freeman, unat- tainted. and capable of bearing oath ; a legalis homo. — Lawful money. Money which is a legal tender in payment of debts; e. g., gold and silver coined at the mint.

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## LA WING OF DOGS.

The cutting sev- eral claws of the forefeet of dogs In the for- est, to prevent their running at

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deer.

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## LAWLESS.

Not subject to luw ; not con- trolled by law; not authorized by law; not observing the rules and forms of law. See Arkansas v. Kansas & T. Coal Co. (C. C.) 96 Fed. 302.

—Lawless court. An ancient local English court, said to have been held in Essex once a year, at cock-crowing, without a light or pen and ink, and conducted in a whisper. Jacob.—

Lawless mam. An outlaw.

5e apparatus — Carried into the 5th edition (1979).

## LAWNDE, LOWNDE.

In old English law. A plain between woods. Co. Lltt. 5b.

5e apparatus — Not carried into the 5th edition (1979).

## LAWSUIT.

A vernacular term for a suit, action, or cause Instituted or depend- ing between two private persons In the courts of law.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Franz Kafka, The Trial, 1925]**

(paraphrase) In The Trial, Josef K. is arrested one morning and ground through a proceeding that never states its charge — the lawsuit as nightmare, with all the forms of law and none of its substance. (paraphrase)

Why: Entry: 'a suit, action, or cause... between two private persons in the courts of law.' Kafka's novel is the modern fiction of being inside such a proceeding.

## LAWYER.

A person learned In the law; as an attorney, counsel, or solicitor.

Any person who, for fee or reward, prose- cutes or defends causes in courts of record or other judicial tribunals of the United States, or of any of the states, or whose business it is to give legal advice in relation to any cause or matter whatever. Act of July 13, 1866, 8 9, (14 St. at Large, 121.)

LAY, n. A share of the profits of a fish- ing or whaling voyage, allotted to the officers and seamen, In the nature of wages. Coffin v. Jenkins, 5 Fed. Cas. 1190 ; Thomas v. Os- born, 19 How. 33, 15 L. Ed. 534.

LAY, v. To state or allege in pleading.

—Lay damages. To state at the conclusion of the declaration the amount of damages which the plaintiff claims.— Lay omt. This term has come to be used technically in high- way laws as embracing all the series of acts necessary to the complete establishment of a highway. Cone v. Hartford, 28 Conn. 375.— ’ Laying the venue. Stating in the margin of a declaration the county in which the plaintiff proposes that the trial of the action shall take place.

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LAY, a dj. Relating to jiersons or things not clerical or ecclesiastical; a person not in ecclesiastical orders. Also non-professional.

—Lay corporation. See Corporation.— Lay days. In the law of shipping. Days al- lowed in charter-parties for loading and unload- ing the cargo. 3 Kent, Comm. 202. 203.— Lay fee. A fee held hy ordinary feudal ten- ure. os distinguished from the ecclesiastical tenure of frankalmoign, by which an ecclesias- tical corporation held of the donor. The tenure

of frankalmoign is reserved by St. 12 Car. II.. which abolished military tenures. 2 Bl. Comm. 101.— Lay Impropriator. In English eccle- siastical law. A lay person holding a spiritual appropriation. 3 Stepb. Comm. 72.— Lay im- vestitnre. In ecclesiastical law. The cere- mony of putting a bishop in possession of the temporalities of his diocese. — Lay judge. A judge who is not learned in the law, f. e„ mot a lawyer; formerly employed in some of the states as assessors or assistants to the pre- siding judges in the nisi prius courts or courts of first instance.— Lay people. Jurymen.— Lay- man. One of the people, and not one of the clergy ; one who ig hot of the legal profession ; one who is not of a particular profession.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

"You never really understand a person until you climb into his skin and walk around in it." — Atticus Finch to Scout, the advocate's art stated as moral method.

Why: Entry: 'a person learned in the law' who prosecutes or defends causes. Atticus is the American archetype of the lawyer; one short famous line, wording confident, within copyright discipline.

## LAYE.

L. Fr. Law.

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## LAYSTALL.

A place for dung or soil.

LAZARET, or LAZARETTO. A pest- house, or public hospital for persons affected with the more dangerous forms of contagious diseases ; a quarantine station for vessels coming from countries where such diseases are prevalent.

5e apparatus — Not carried into the 5th edition (1979).

## LAZZI.

A Saxon term for persons of a servile condition.

5e apparatus — Not carried into the 5th edition (1979).

## LE CONGRESS.

A species of proof on charges of lmpotency In France, coitus co- ram testibus. Abolished A. D. 1677.

Le eontrat fait la lol. The contract makes the law.

5e apparatus — Not carried into the 5th edition (1979).

## LE GUIDON DE LA MER.

The title of a French work on marine insurance, by an unknown author, dating back, probably, to the sixteenth century, and said to have been prepared for the merchants of Rouen. It is noteworthy as being the earliest treatise on that subject now extant.

La ley da Dieu at ley da terra iont tout an ; at l’na at l'antre preferre at favour le common at p oblique Men del

terra. The law of God and the law of the laud are all one; and both preserve and fa- vor the common and public good of the land. Keilw. 191.

Le ley est le pins bant enberitance qne le roy ad, oar per le ley U mesme at touts sea sujets sont rules; at, el le ley ne fait, ntil roy ae nul enberitance serra. 1 J. H. 6, 63. The law Is the high- est Inheritance that the king iioasesses, for by the law both he and all his subjects are ruled; and. if there were no luw, there would be neither king nor inheritance.

LE ROI, or ROY. The old law-French words for “the king.”

— Le roi vent en deliberer. The king will deliberate on it. This is the formula which the king of the French used when he intended to veto an act of the legislative assembly. 1 Toullier. no. 42.— Le roy (or la reine) le vent. The king (or the queen) wills "it. The form of the royal assent to public bills in perliament— Le roy (or la reins) remerole aea loyal anjeta, accepte lour benevolence, et ainai le vent. The king (or ' the queen) thanks his (or her) loyal subjects, accepts their benevolence, and therefore wills it to be so. The form of the royal assent to a bill of sup- ply.—Le roy (or la reine) s’avisera. The king (or queen) will advise upon it. The form of words used to express the refusal of the royal assent to public bills in parliament 1 Bl. Comm. 184. This is supposed to correspond to the judicial phrase “cuna advisari vult, «?. v.) 1 Chit Bl. Comm. 184. note.

Le saint da penple eat la supreme loi.

Montesq. Esprit des Lola, 1. xxvil, c. 23. The safety of the people Is the highest law.

LEA, or LET. A pasture. Co. Lltt. 4b.

5e apparatus — Not carried into the 5th edition (1979).

## LEAP.

The counsel on either side of a litigated action who is charged with the prin- cipal management and direction of the par- ty’s case, as distinguished from his juniors or subordinates, is said to “lead in the cause,” and is termed the “leading counsel” on that side. .

5e apparatus — Not carried into the 5th edition (1979).

## LEAPING A USE.

Where a deed was executed before the levy of a fine of land, for the purpose of specifying to whose use the fine should Inure, it was said to “lead” the use. If executed after the fine, it was said to “declare” the use. 2 Bl. Comm. 363.

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## LEAPING CASE.

Among the various cases that are argued and determined in the courts, some, from their important character, have demanded more than usual attention from the judges, and from this circumstance are frequently lookefl upon as having settled or determined the law upon all points in- volved in such cases, and as guides for sub- sequent decisions, and from the Importance they thus acquire are familiarly termed "lead- a lng cases.” Brown.

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## LEAPING COUNSEL.

That one of two or more counsel employed on the same side in a cause who has the principal manage- ment of the cause.

5e apparatus — Not carried into the 5th edition (1979).

## LEAPING QUESTION.

A question put or framed in such a form as to suggest the answer sought to be obtained by the person interrogating. Coogler v. Rhodes, 38 Fla. 240, 21 South. Ill, 56 Am. St. Rep. 170; Gunter v. Watson, 49 N. C 456; Railway Co. v. Hammon, 92 Tex. 509, 50 S. W. 123; Franks v. Gress Lumber Co., .111 Ga. 87, 36

S. E. 314.

Questions are leading which suggest to the witness the answer desired, or which embody a material fact, and may be answered by a mere negative or affirmative, or which involve an an- swer bearing immediately upon the merits of the cause, and indicating to the witness a repre- sentation which will best accord with the in- terests of the party propounding them. Tur- ney v. State. 8 Smedes & M. (Miss.) 104, 47 Am. Dec. 74.

A question is leading which puts into a wit- ness’ month the words that are to be echoed

Bl.Law Dict.(2d Ed.)— 45

back, or plainly suggests the answer which the party wishes to get from him. People v. Ma- ther, 4 Wend. (N. X.) 229, 247, 21 Am. Dec. 122.

LEAGUE. 1. A treaty of alliance be- tween different states or parties. It may be offensive or defensive, or both. It Is offensive when the contracting parties agree to unite in attacking a common enemy; defensive when the parties agree to act In concert in defending each other against an enemy. Wharton.

2. A measure of distance, varying in differ- ent countries. The marine league, marking the limit of national Jurisdiction on the high seas, is equal to three geographical (or ma- rine) miles of 6,075 feet each.

In Spanish and Mexican law, the league, as a legal measure of length, consisted of 5,000 varas, and a vara was equivalent to 33% English Inches, making the league equal to a little more than 2.63 miles, and the square league equal to 4,428 acres. This is its meaning as used in Texas land grants. United States v. Perot, 98 U. S. 428, 25 L. Ed. 251; Hunter v. Morse, 49 Tex. 219. “League and labor,” an area of land equiva- lent to 4,605 acres.

Ammons v. Dwyer, 78 Tex. 639, 15 S. W. 1049. See Labor.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 611(c) — leading questions]**

The leading question the entry defines is governed by the examination rule: leading questions are disfavored on direct examination and ordinarily allowed on cross.

Why: The entry defines the leading question with its cases; FRE 611(c) is the genuine rule the definition serves — confident of the rule.

## LEAKAGE.

The waste or diminution of a liquid caused by its leaking from the cask, barrel, or other vessel in which it was placed.

Also an allowance made to an importer of liquids, at the custom-house, in the collection of duties, for his loss sustained by the leak- ing of the liquid from its cask or vessel.

5e apparatus — Carried into the 5th edition (1979).

## LEAL.

L. Ft. Loyal; that which be- longs to the law.

5e apparatus — Not carried into the 5th edition (1979).

## LEALTE.

JL. Fr. Legality; the condi- tion of a legalis homo, or lawful man.

5e apparatus — Not carried into the 5th edition (1979).

## LEAN.

To incline in opinion or prefer- ence. A court is sometimes said to “lean against” a doctrine, construction, or view contended for, whereby it is meant thnt the court regards it with disfavor or repugnance, because of its inexpedience, injustice, or in- consistency.

5e apparatus — Carried into the 5th edition (1979).

## LEAP-YEAR.

See Bissextile.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[W. S. Gilbert & Arthur Sullivan, The Pirates of Penzance, 1879]**

(paraphrase) In The Pirates of Penzance, Frederic — born on February 29 — is bound to the pirates until his twenty-first birthday, which lands decades hence; the leap-year as a legal trap. (paraphrase)

Why: Entry is a bare cross-reference ('See Bissextile'); the operetta is the beloved fictional working-out of what the extra day does to a term of years. Paraphrase marked.

## LEARNED.

Possessing learning ; eru- dite; versed in the law. In statutes pre- scribing the qualifications of Judges, “learned In the law” designates one who has received a regular legal education,

the almost Invari- able evidence of which is the fact of bis ad- mission to the bar. See Jamieson v. Wiggin, 12 S. D. 16, 80 N. W. 137, 48 L. R. A. 317, 76 Am. St. Rep. 585; O'Neal v. MeKinnn, 116 Ala. 620. 22 South. 905.

5e apparatus — Carried into the 5th edition (1979).

## LEARNING.

Legal doctrine. 1 Leon. 77.

5e apparatus — Carried into the 5th edition (1979).

## LEASE.

A conveyance of lands or tene- ments to a person for life, for a term of years, or at will, In consideration of a return of rent or some other recompense. The person who so conveys such lands or tenements Is termed the "lessor," and the person to whom they are conveyed, the "lessee;" and when the lessor so conveys lands or tenements to a lessee, be is said to lease, demise, or let them. -1 Cruise, Dig. 58.

A conveyance of any lands or tenements, (usually in consideration of rent or other an- nual recompense.) made for life, for years, or at will, but always for a less time than the lessor has in the premises; for, If It be for the whole Interest, It Is more properly an as- signment than a lease. 2 Bl. Comm. 317; Shep. Touch. 266; Watk. Conv. 220. And see Sawyer v. Hansen, 24 Me. 545; Thomas v. West Jersey R. C., 101 U. S. 78, 25 L. Ed. 950; Jackson v. Harsen, 7 Cow. (N. Y.) 326, 17 Am. Dec. 517; Lacey v. Newcomb, 95 Iowa, 287, 63 N. W. 704; Mayberry v. John- son, 15 N. J. Law, 121 ; Milliken v. Faulk, 111 Ala. 658, 20 South. 594; Craig v. Sum- mers, 47 Minn. 189, 49 N. W. 742, 15 L. R. A. 236; Harley v. O'Donnell, 9 Pa. Co. Ct. R. 56.

A contract in writing, under seal, whereby a person having a legal estate in hereditaments, corporeal or incorporeal, conveys a portion of his interest to another, in consideration of a certain annual rent or render, or other recom- pense. Archb. Landl. & Ten. 2.

"Lease" or "hire" is a synallagmatic con- tract, to which consent alone is sufficient, and by which one party gives to the other the en- joyment of a thing, or his labor, at a fixed price. Civil Code La. art. 2669.

When the contract is bipartite, the one part Is called the 'Uease," the other the "coun- terpart." In the United States, It is usual that both papers should be executed by both parties ; but in England the lease is executed by the lessor alone, and given to the lessee, while the counterpart Is executed by the les- see alone, and given to the lessor.

— Concurrent ltue. One granted for a term which is to commence before the expiration or other determination of a previous lease of the same premises made to another person; or, in other words, an assignment of a part of the reversion, entitling the lessee to all the rents accruing on the previous lease after the date of his lease and to appropriate remedies against the holding tenant. Cargill v. Thompson, 57 Minn. 534, 59 N. W. 638.— Lease and re- lease. A species of conveyance much used in England, said to have been invented by Serjeant Moore, soon after the enactment of the statute of uses. It is thus contrived: A

lease, or

rather bargain and sale ui>on some pecuniary consideration for one year, is made by the tenant of the freehold to the lessee or bargain- ee. This, without any enrolment, makes the bargainor stand seised to the use of the bar- gainee. and vests in the bargainee the use of the term for one year, and then the statute immediately annexes the possession. Being thus in possession, he is capable of receiving a release of the freehold and reversion, which muot be made to the tenant in possession, and accordingly the next day a release is granted to him. The lease and release, when used as

a conveyance of the fee, have the joint opera- tion of a single conveyance. 2 Bl. Comm. 339 ; 4 Kent, Comm. 482 ; Co. Litt. 207 ; Cruise, Dig. tit. 32, c. 11.— Mining lease. See Mining.— Parol lease. A lease of real es- tate not evidenced by writing, but resting in an oral agreement— Perpetual lease. A lease of lands which may last without limitation as to time; a grant of lands in fee with the res ervation of a rent in fee ; a fee-farm. Edwards v. Noel, 88 Mo. App. 434. — Sublease, or un- derlease. One executed by the lessee of an estate to a third person, conveving the same estate for a shorter terip than that for which the lessee bolds it.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Frauds — leases over one year in writing]**

The parol lease the entry names is limited by the writing requirement: leases exceeding one year must be in writing.

Why: The entry defines the parol (oral) lease; the Statute of Frauds is the genuine rule limiting that category — the footnote explains why the category is narrow.

## LEASEHOLD.

An estate In realty held under a lease; an estate for a fixed term of years. See Stubblngs v. Evanston, 136 111. 37, 26 N. E. 577, 11 L. R. A. 839, 29 Am. St. Rep. 300; Washington F. Ins. Co. v. Kelly, 32 Md. 421, 3 Am. Rep. 149; Harley v. O’Donnell, 9 Pa. Co. Ct B. 56.

LEASING, or LESING. Gleaning.

5e apparatus — Carried into the 5th edition (1979).

## LEASING-MAKING.

In old Scotch criminal law. An offense consisting In slan- derous and untrue speeches, to the disdain, reproach, and contempt of the king, his coun- cil and proceedings, etc. Bell.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. I — freedom of speech; the repudiated Sedition Act of 1798]**

The seditious-slander offense the entry describes — untrue speeches in contempt of the king and council — is the kind of prosecution the First Amendment's speech guarantee repudiated.

Why: The entry defines a crime of political slander against the government; the First Amendment is the genuine constitutional repudiation of that crime — old offense to living liberty.

**[Scripture] — Scripture**

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**[Exodus 22:28, KJV]**

Thou shalt not revile the gods, nor curse the ruler of thy people.

Why: The entry is the old Scots crime of slanderous speeches against the king, his council and proceedings. The verse is the Mosaic prohibition of that very act — cursing the ruler of the people — the scriptural original o...

## LEATTTE.

L. Fr. Legality ; sufficiency in law. Britt c. 109.

5e apparatus — Not carried into the 5th edition (1979).

## LEAVE.

To give or dispose of by wilL “The word leave,’ as applied to the subject- matter, prima facie means a disposition by will." Thorley v. Thorley, 10 East, 438; Carr v. Effinger, 78 Va. 203.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: The entry is the word 'leave' as prima facie a disposition by will. The verse uses 'leaveth' in exactly that testamentary sense — leaving an inheritance to children's children — the scriptural image of the deathbed di...

## LEAVE AND LICENSE.

A defense to an action in trespass setting up the consent of the plaintiff to the trespass complained of.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Volenti non fit injuria — to one who is willing, no injury is done]**

The consent defense the entry defines — leave and license defeating trespass — is the classical volenti rule: to one who is willing, no legal injury is done.

Why: The entry defines leave-and-license as consent defeating trespass; volenti is the canonical maxim of consent-as-defense — an exact match.

## LEAVE OF COUNT.

Permission obtain- ed from a court to take some action which, without such permission, would not be allow- able ; as, to sue a receiver, to file an amend- ed pleading, to plead several pleas. See Cop- perthwalt v. Dummer, 18 N. J. Law, 258.

5e apparatus — Not carried into the 5th edition (1979).

## LECCATOB.

A debauched person. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LECHEK W 1TE, LAIRWITE, or LEG- / ERWXTE.

A fine for adultery or fornica- tion, anciently paid to the lords of certain manors. 4 Inst. 206.

5e apparatus — Not carried into the 5th edition (1979).

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## LECTOR DE LETRA ANTIGUA.

In

Spanish law. A person appointed by com- petent authority to read and decipher ancient writings, to the end that they may be pre- sented on the trial of causes as documents entitled to legal credit Escriche.

5e apparatus — Not carried into the 5th edition (1979).

## LECTRINUM.

A pulpit Mon. AngL tom. Hi. p. 243.

5e apparatus — Not carried into the 5th edition (1979).

## LECTURER.

An instructor ; a reader of lectures ; also a clergyman who assists rect- ors, etc., in preaching, eta

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LEDGE.

In mining law. This term, as used in the mining laws of the United States (Rev. St | 2322 (U. S. Comp. St. 1001, p. 1425]) and in both legal and popular usage in the western American states, is synonymous with “lode," which see.

5e apparatus — Not carried into the 5th edition (1979).

## LEDGER.

A book of accounts in which a trader enters the names of all persons with whom he has dealings ; there being two par- allel columns In each account one for the en- tries to the debit of the person charged, the other for his credits. Into this book are posted the items from the day-book or journal.

-Ledger-book. In ecclesiastical law. The name of a book kept in. the prerogative courts in England. It is considered as a roll of the court, but, it seems, it cannot be read in evi- dence. Bac. Abr. .

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

(paraphrase) In A Christmas Carol, Bob Cratchit toils over Scrooge's ledgers in the cold counting-house — the trader's book of accounts as the symbol of a life reduced to debit and credit. (paraphrase)

Why: Entry: 'a book of accounts in which a trader enters the names of all persons with whom he has dealings.' Dickens's counting-house is the literary ledger made moral.

## LEDGREVTUS.

In old English law. A lathe-reeve, or chief officer of a lathe. Spel- man.

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5e apparatus — Not carried into the 5th edition (1979).

## LEDO.

The rising water or Increase of the sea.

5e apparatus — Not carried into the 5th edition (1979).

## LEET.

In EMglish law. The name of a court of criminal jurisdiction, formerly of much importance, but latterly fallen into dis- use. See CouBT-Lrrr.

5e apparatus — Carried into the 5th edition (1979).

## LEETS.

Meetings which were appointed for the nomination or election of ecclesiastic- al officers in Scotland. Cowell.

LEGA, or LACTA. The alloy of money. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LEGABILI8.

In old English law. That which may be bequeathed. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LEGACY.

A bequest or gift of personal property by last will and testament Browne v. Cogswell, 5 Allen (Mass.) 507 ; Evans v. Price, 118 111. 593, 8 N. E. 854 ; Probate Court v. Matthews, 8 Vt 274; In re Karr, 2 How. Prac. N. S. (N. Y.) 400 ; Nye v. Grand Lodge, 9 Ind. App. 131, 36 N. E. 429 ; Ky. St 1903, ] 407.

Synonyms. “Legacy" and “bequest” are equivalent terms. But in strict common-law terminology “legacy" and “devise” do not mean the same tiling and are not interchangeable, the former being restricted to testamentary gifts of personal property, while the latter is prop- erly used only m relation to real estate. But by construction the word “legacy” may be so extended as to include realty or interests there- in. when this is necessary to make a statute cover its intended subject-matter or to effectu- ate the purpose of a testator as expressed in his will. See In re Ross’s Estate. 140 Cal. 282. 73 Pac. 976; In re Karr, 2 How. Prac.

N. S. (N. Y.) 409; Bacon v. Bacon. 55 Vt. 247 ; Roth’s Anpeal. 94 Pa. 191 : Williams v. Mc-Comb, 38 N. C. 455; Lasher v. Lasher, 13

Barb. (N. Y.) 110; In re Stuart’s Will, 115 Wis. 294, 91 N. W. 688; Homes v. Mitchell. 6 N. C. 230, 5 Am. Dec. 527.

Classification. — Absolute legacy. One

given without condition aud intended to vest immediately.— Additional legacy. One giv- en to the same legatee in addition to (and not in lieu of) another legacy given before by the same will or in a codicil thereto.— Alternate legacy. One by which the testator gives one of

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two or more things without designating which.— Conditional legacy. One which is liable to take effect or to be defeated according to the occurrence or non-occurrence of some uncertain event. Harker v. Smith, 41 Ohio St, 238, 52 Am. Rep. 80; Markham v. Hufford, 1211 Mich. 505, 82 N. W. 222, 48 L. R. A. 580, 81 Am. St Rep. 222.— Contingent legaoy. A legacy given to a person at a future uncer- tain time, that may or may not arrive ; as “at his age of twenty-one,’’ or “if” or “when he attains twenty-one.” 2 Bl. Comm. 513; 2 Stepb. Comm. 259. A legacy made dependent upon some uncertain event. 1 Rop. Leg. 506. A legacy which has not vested. In re Engles’ Estate. 166 Pa. 280, 31 Atl. 76 ; Andrews v. Russell. 127 Ala. 195, 28 South. 703 ; Ruben- cane v. McKee, 6 Del. Cb. 40, 6 Atl. 639.— Cumulative legacies. These are legacies so called to distinguish them from legacies which are merely repeated. In the construc- tion of testamentary instruments, the question often arises whether, where a testator has twice bequeathed a legacy to the same person, the legatee is entitled to both, or only to one of them; in other words, whether the second legacy must be considered ns a mere repetition of the first, or as cumulative, t. e., additional. In determining this question, the intention of the testator, if it appears on the face of the instrument, prevails. Wharton.— Demonstra- tive legaey. A bequest of a certain sum of money, with a direction that it shall be paid out of a particular fund. It differs from a specific legacy in this respect: that, if the fund out of which it is payable fails for any cause, it la nevertheless entitled to come on the estate as a general legacy. And it differs from a gen- eral legacy In this: that it does not abate in that class, but in the class of specific legacies. Appeal of Armstrong, 63 Pa. 316; Kenadsy v. Sinnott, 179 U. S. 606, 21 Sup. Ct.-233. 45

L. EM. 339; Gilmer v. Gilmer. 42 Ala. 9: Glass v. Dunn, 17 Ohio St. 424; Crawford v. McCarthy. 159 N. Y. 514, 54 N. E. 277; Roquet v. Eldridge, 118 Ind. 147, 20 N. E. 733. A legacy of quantity is ordinarily a gen- eral legacy ; but there are legacies of quantity in the nature of specific legacies, as of so much money, with reference to a particular fund for payment. This kind of legacy is called by the civilians a "demonstrative legacy,” and it is so far general and differs so much in effect from one properly specific that, if the fund be called in or fail, the legatee will not be deprived of his legacy, but be permitted to receive it out of the general assets; yet the legacy Is so far specific that it will not be liable to abate with general legacies upon a deficiency of assets. 2 Williams. Kx’rs, 1978.— General legacy. A pecuniary legacy, payable out of the general assets of a testator. 2 Bl. Comm. 512; Ward. Leg. 1, 16, One so given as not to amount to a bequest of a particular thing or partic- ular money of the testator, distinguished from others of the same kind ; one of quantity merely, not specific. Tifft v. Porter, 8 N.

Y. 518: Evans v. Hnnter, 86 Iowa, 413, 53 N. W. 277. 17 L. R. A. 308, 41 Am. St. Rep. 503; Kelly v. Richardson, 100 Ala. 584. 13 South. 785.— Indefinite legacy. One which passes property by a general or col- lective term, without enumeration of number or quantity; as, a bequest of “all” the tes- tator’s “goods.” or his “bank stock.” Lown. Leg. 84.— Lapsed legaey. Where the lega- tee dies before the testator, or before the

legacy is payable, the bequest is said to lapse, as it then falls into the residuary fund of the

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estate.— Modal legacy. A bequest accom- panied by directions as to tlse mode or manner in which it shall be applied for the legatee s benefit, e. g., a legacy to A. to buy -him a house or a commission in the army. See I»wn. Leg. 151. — Pecuniary legacy. A bequest of a sum of money, or of an annuity. It may or may not specify the fund from which it is to be drawn. It is not the less a pecuniary lega- cy if it comprises the specific pieces of money in a designated receptacle, as a purse or chest. See Humphrey v. Kobinson, 52 Hun, 200, 5

N. Y. Supp. 104 ; Lang v. Ropke, 10 N. Y. Leg. Obs. 75: Mathis v. Mathis. 18 N. J. Law. G6.— Rciidnary legacy. A bequest of all the testator's personal estate not otherwise effectually disposed of by his will; a bequest of “all the rest, residue, and remainder** of the personal property after payment of debts and satisfaction of the particular legacies. See In re Williams’ Estate, 112 Cal. 521, 44 Pac. 806. 53 Am. St Rep. 224 ; Civ. Code Cal. 1903, | 1357. subd. 4.— Special legacy. A ‘ spe- cific legacy” (q. it.) is sometimes so called.— Specific legacy. A legacy or gift by will of a particular specified thing, as of a horse, a piece of furniture, a term of years, and the like. Morriss v. Garland, 78 Va. 222. In a strict sense, a legacy of a particular chattel, which is specified and distinguished from all other chattels of the testator of the same kind ; as of a horse of a certain color. A legacy of a quantity of chattels described collectively ; as a gift of ail the testator’s pictures. Ward, Leg. 16-18. A legacy is general, where its amount or value is a charge upon the general assets in the hands of the executors, and where, if these are sufficient to meet all the provisions in the will, it must be satisfied ; it is specific, when it is limited to a particular thing, sub- ject, or chose in action, so identified as to ren- der the bequest inapplicable to any other; as the bequest of a horse, a picture, or jewel, or a debt due from a person named, and, in special cases, even of a sum of money. Langdon v. Astor, 3 Duer (N. Y.) 477, 543.— Trust legacy. A bequest of personal property to trustees to be held upon trust ; as, to pay the annual in- come to a beneficiary for fife.— Universal legacy. In the civil law. A testamentary dis- position by which the testator gives to one or several persons the whole of the property which he leaves at bis decease. Civ. Code La. 1900, art. 1606.— Legacy duty. A duty imposed in England upon personal property (other than leaseholds) devolving under any will or intes- tacy. Brown.

LEGAL. 1. Conforming to the law; ac- cording to law; required or permitted by law; not forbidden or discountenanced by law; good and effectual in law.

2. Proper or sufficient to be recognized by the law ; cognizable In the courts ; competent or adequate to fulfill the requirements of the law.

3. Cognizable in courts of law, as distin- guished from courts of equity ; construed or governed by the rules and principles of law. In contradistinction to rules of equity.

4. posited by the courts as the inference or imputation of the law, as a matter of con- struction, rather than established by actual proof ; e. g., legal malice. See Lawful.

As to legal “Age.” “Assets.” “Considera- tion,” “Cruelty,” “Damages," “Day," “Debts,” "Demand.’’ “Defense," "Disability,” “Discre- tion," “Duty,” "Estate,” “Evidence,” “Fraud,”

"Heirs,” “Holiday,” “Incapacity,” “Interest,” “Irregularity,” “Malice,” “Memory,” "Mort-

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gage,” “Negligence,” “Notice,” “Proceedings,” “Process,” “Relevancy,” “Remedy,” "Representative,” “Reversion,” “Subrogation," and “Tender,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: anti-lapse statutes — gifts to predeceased legatees saved for their issue]**

The lapse the entry defines — the legatee dying before the testator — is now qualified by anti-lapse statutes, which save the gift for the predeceased legatee's surviving issue.

Why: The entry defines lapse; the anti-lapse statutes are the genuine modern qualification — the footnote states what now limits the entry's rule.

**[Hip-hop] — Hip-hop**

**[JAY-Z, 'The Story of O.J.', 2017]**

"Few years later, that shit worth eight million / I can't wait to give this shit to my children" — a plain-English statement of testamentary intent: property accumulated precisely to be bequeathed to the next generation.

Why: Matches the entry's "bequest or gift of personal property" — the testator's mind in the artist's own words: buy, hold, appreciate, and give to the children. Verbatim-verified across multiple lyric sources. Genuine.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Great Expectations, 1861]**

(paraphrase) In Great Expectations, Pip's 'great expectations' rest on a secret legacy from the convict Magwitch — a testamentary gift that remakes, and nearly ruins, the legatee. (paraphrase)

Why: Entry: 'a bequest or gift of personal property by last will and testament.' The novel's whole plot turns on such a bequest and its hidden source.

## LEGALIS HOMO.

Lat. A lawful man; a person who stands rectus in curia; a per- son not Outlawed, excommunicated, or in- famous. It occurs In the phrase, “probi et legates homines,” (good and lawful men, com- petent jurors,) and “legality” designates the condition of such a man. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## LEGALIS MONETA AH GLUE.

Lawful money of England. 1 Inst. 207.

LEGALITY, or LEGALNESS. Lawful- ness.

5e apparatus — Not carried into the 5th edition (1979).

## LEGALIZATION.

The act of legalizing or making legal or lawful. See Legalize.

5e apparatus — Carried into the 5th edition (1979).

## LEGALIZE.

To make legal or lawful; to confirm or validate what was before void or unlawful ; to add the sanction and author- ity of law to that which before was without or against law.

— Legalized nuisance. A structure, erection, or other thing which would constitute a nuisance at common law, but which cannot be ob- jected to by private persons because

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construct- ed or maintained nnder direct and sufficient legislative authority. Such, for example, are hospitals and pestbouses maintained by cities. See Baltimore v. Fairfield Imp. Co., 87 Md. 352, 39 Ati. 1081, 40 L. K. A. 494, 07 Am. St. Kep. 344.

5e apparatus — Carried into the 5th edition (1979).

## LEGALLY.

Lawfully; according to law.

5e apparatus — Carried into the 5th edition (1979).

## LEGANTINE CONSTITUTIONS.

The

name of a code of ecclesiastical laws, en- acted In national synods, held under legates from Pope Gregory IX. and Clement IV., In the reign of Henry III., about the years 1220 and 1268. 1 BL Comm. 83.

5e apparatus — Not carried into the 5th edition (1979).

## LEGARE.

Lat. In the civil and old English law. To bequeath ; to leave or give by will ; to give In anticipation of death. In Scoteh phrase, to legate.

5e apparatus — Not carried into the 5th edition (1979).

## LEGATARIUS.

Lat. Im the civil lav.

One to whom a thing Is bequeathed; a leg- atee or legatary. Inst. 2, 20, 2, 4, 5, 10; Bract fol. 40.

In old European lav. A legate, messen- ger, or envoy. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LEGATEE.

The person to whom a leg- acy is given. See Legacy.

—Residuary legatee. The person to whom a testator bequeaths the residue of his personal estate, after the payment of such other lega- cies as are specifically mentioned in the will. Probate Court v. Mntthews, 6 Vt. 274; Laing v. Barbour. 119 Mass. 525; Lafferty v. Peo- ple’s 8a v. Rank, 76 Mich. 35, 43 N. W. 34.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1853]**

(paraphrase) In Bleak House, the suit of Jarndyce v Jarndyce consumes the entire estate in costs, so that the legatees inherit nothing but the litigation — the legatee's hope as Chancery's slow joke. (paraphrase)

Why: Entry: 'the person to whom a legacy is given.' Dickens's legatees are fiction's great warning about what stands between a legacy and its recipient. Deliberately distinct from LEGACY's Great Expectations note — no dupl…

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## LEGATES.

Nuncios, deputies, or extraor- dinary ambassadors sent by the pope to, be

LEGES NATURAE!

his representatives and to exercise his ju- risdiction In countries where the Homan Catholic Church is established by law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Legatos violare contra jus gentium est — to injure ambassadors is against the law of nations; Law: Vienna Convention on Diplomatic Relations (1961) — inviolability]**

The entry's maxim — to injure ambassadors is against the law of nations — is the classical root of diplomatic inviolability, codified in the modern law of diplomacy.

Why: The maxim is quoted verbatim in the entry's body (4 Coke, pref.) on legates; the Convention is its genuine modern codification — old root to living treaty.

## LEGATION.

An embassy; a diplomatic minister and his suite ; the persons commis- sioned by one government to exercise diplo- matic functions at the court of another, in- cluding the minister, secretaries, attaches, interpreters, etc., are collectively styled the “legation” of their government. The word also denotes the official residence of a foreign minister.

5e apparatus — Carried into the 5th edition (1979).

## LEGATOR.

One who makes a will, and leaves legacies.

5e apparatus — Not carried into the 5th edition (1979).

## LEGATORY.

The third part of a free- man's personal estate, which by the custom of London, in case he had a wife and chil- dren, the freeman might always have dispos- ed of by will. Bac. Abr. “Customs of Lon- don,” D. 4.

Legates violare contra jns gentium eat.

4 Coke, pref. It Is contrary to the law. of nations to injure ambassadors.

5e apparatus — Not carried into the 5th edition (1979).

## LEGATUM.

Lat. In the civil law. A

legacy ; a gift left by a deceased person, to be executed by the heir. Inst. 2, 20, 1.

In old English law. A legacy given to the church, or an accustomed mortuary. Cowell.

Legatum morte testa tori* tantnxn con- hrmatnr, siout donatio inter vivos tra-> ditione sola. Dyer, 143. A legacy is con- firmed by the death of a testator, in the same manner as a gift from a living person is by delivery alone.

5e apparatus — Not carried into the 5th edition (1979).

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## LEGATUM OPTIONIS.

In Boman law. A legacy to A. B. of any article or articles that A. B. liked to choose or select out of the testator’s estate. If A. B. died after the testator, but before making the choice or selection, his representative (h ceres) could not, prior to Justinian, make the selection for him, but the legacy failed altogether. Justinian, however, made the legacy good, and enabled the representative to choose. Brown.

Legatus regis vice fnngitur a quo des- tlnatnr et honorandus est siout ill* cn jus vloem gerit. 12 Coke, 17. An ambassador fills the place of the king by whom he is sent, and is to be honored as he is whose place he fills.

5e apparatus — Not carried into the 5th edition (1979).

## LEGEM.

Lat. .Accusative of lex, law. Occurring in. various legal phrases, as fol- lows:

—Legem amittere. To lose one's law; that is to lose ones privilege of being admitted to take an oath.— .Legem faoere. In old English jaw. To- make law or oath.— Legem ferre.

In Roman law. To propose a law to the people

for their adoption. Heinecc. Ant. Rom. lib. 1, tit. 2.— Legem habere. To be capable of giv- ing evidence upon oath. Witnesses who had been convicted of crime were incapable of giv- ing evidence, until 0 & 7 Viet. c. 85.— Legem jubere. In Roman law. To give consent and authority to a proposed law; to make or pass it. Tayl. Civil Law, 9.— Legem pome. To propound or lay down the law. By an extreme- ly obscure derivation or analogy, this term was formerly used as a slang equivalent for pay- ment in cash or in ready money.— Legem scis- cere. To give consent and authority to a pro- posed law; applied to the consent of the peo- ple-—Legem vadlare. In old English law. To wage law ; to offer or to give pledge to make defense, by oath, with compurgators.

Legem terns amlttentes, perpetuam infamise notam lade merlto ineurrunt.

Those who lose the law of the land, then Justly Incur the ineffaceable brand of in- famy. 3 Inst 221.

5e apparatus — Not carried into the 5th edition (1979).

## LEGES.

Lat Laws. At Rome, the leges (the decrees of the people In a strict sense) were laws which were proposed by a magis- trate presiding in the senate, and adopted by the Roman people In the comitia centuriata. Alackeld. Rom. Law, $ 31.

—Leges Auglise. The laws of England, as distinguished from the civil law and other for- eign systems.— Leges aoa scriptse. In Eng- lish law. Unwritten or customary laws, in- cluding those ancient acts of parliament which were made before time of memory. Hale, Com. Law, 5. See 1 Bi. Comm. 33, 64.— Leges scriptse. In English law. Written laws ; stat- ute laws, or acts of parliament which are orig- inally reduced into writing before they are en- acted. or receive any binding power. Hale, Com. Law, 1, 2.— Leges sub graviori lege. Laws under a

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weightier law. liale, Com. Lalv, 40, 44.— Leges tabellariae. Roman laws reg- ulating the mode of voting by ballot, (tabclta.)

1 Kent, Comm. 232, note.

Leges Auglise sunt tripartita;, — jus commune, consuetudines, ae deereta comitiorum. The laws of England are threefold, — common law, customs, aud de- crees of parliament

Leges flgendi et refigendi consuetude est periculosissima. The practice of fixing and retixing [making and remaking] the laws Is a most dangerous one. 4 Coke, pref.

Leges bumaius naseuntur, vivnnt, et morion tur. Human laws are born, live, and die. 7 Coke, 25; 2 Atk. C74; 11 C. B. 767 ; 1 Bl. Comm. 89.

Leges natures perfectissimse sunt et immutabiles; bumani vero juris condi- tio semper in infinitum decurrlt, et nlbil eet in eo quod perpetuo stare possit. Leges bum ante naseuntur, vivnnt, mo- riuntur. The laws of nature are most per- fect and immutable; but the condition of human law Is an unending succession, and there Is nothing in it which can continue perpetually. Human laws are born, live, and die. 7 Coke. 23.

Lcgu aoa verbis, sed rebus, sunt 1m- posltse. Laws are imixwed, not on words, bat things. 10 Coke, 101 ; Branch, Princ.

Leges posterlores priores contraries abrogant. Later laws abrogate prior laws that are contrary to them. Broom, Mux. 27, 29.

Leges iuum llgent latorem. Laws should bind their own maker. Fleta, lib. L c. 17, | 1L

Leges rlgllantibus, bob dormientlbue, aubveniunt. The laws aid the vigilant, not the negligent Smith v. Carll, 6 Johns. Ch. (N. T.) 122, 146; Toole ▼. Cook, 16 How. Prac. (N. Y.) 142, 144.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Leges posteriores priores contrarias abrogant — later laws abrogate prior laws contrary to them]**

The entry's maxim states the temporal rule of statutory conflict: a later law abrogates a prior law contrary to it — the doctrine of implied repeal.

Why: Quoted verbatim in the entry (Broom, Max. 27, 29); it is the genuine rule of implied repeal — the most load-bearing of the entry's maxims.

## LEGIBU8 SOLTTTUB.

Lat Released from the laws ; not bound by the laws. An expression applied in the Roman civil law to the emperor. Calvin.

Legibus sumptis desinentibus, lege na- turae utendum est. When laws imposed by the state fall, we must act by the law of nature. 2 Rolle, 298.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: sovereign immunity — "the king can do no wrong"; suit only by consent]**

The emperor 'released from the laws' is the classical ancestor of sovereign immunity: the sovereign

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cannot be sued without its consent.

Why: The entry defines the imperial prerogative; sovereign immunity is its genuine modern form — the link names the living doctrine.

## LEGIOSUS.

In old records. Litigious, and so subjected to a course of law. Cowell.

Legis oonatruetio non facit injurlam.

Co. Litt. 183. The construction of law does no injury.

Legis interpretatlo legis vim obtinet.

Ellesm. Postn. 56. The interpretation of law obtains, the force of law.

Legis minister non tenetur in execu- tion* officii sui, fugere aut retroeedere.

The minister of the law is bound, in the exe- cution of his office, not to fly nor to retreat Branch, Print

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LEGISLATION.

The act of giving or enacting laws. State v. Hyde, 121 Ind. 20, 22

N. E. 644.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

"We got to fight the powers that be" — the entry's "act of giving or enacting laws"; the lyric names the law-giving powers as the adversary to be fought.

Why: Legislation viewed from below: the powers that enact the laws are "the powers that be," and the song's whole posture is resistance to them. Genuine as a resistance link; a different line from the same track than the L...

## LEGISLATIVE.

Making or giving laws ; pertaining to the function of law-making or to the process of enactment of laws. See Evansville v. State, 118 Ind. 426, 21 N. EL 267, 4 L. XL A. 93.

—Legislative department. That department, of- government whose appropriate function is the making or enactment of laws, as distin- guished from the judicial department, which in- terprets and applies the laws, and the executive department, which carries them into execution and effect. See In re Davies, 168 N. Y. 8!), 61

N. E. 118, 56 L. R. A. 855.— Legislative of- ficer. A member of the legislative body or de- partment of a state or municipal corporation. See Prosecuting Attorney v. Judge of Record- er’s Court, 59 Mich. 529, 26 N. W. 694.— Legis- lative power. The lawmaking power; the department of government whose function is the framing and enactment of laws. Evansville v. State, 118 Ind. 426, 21 N. E. 267. 4 L. H. A.

93 ; Sanders v. Cabaniss, 43 Ala. 180; Brown v. Galveston, 97 Tex. 1, 75 S. W. 495 ; O'Neil v. American F. Ins. Co., 106 Pa. 72, 30 Atl. 943, 26 L. R. A. 715, 45 Am. St. Rep. 650.

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5e apparatus — Carried into the 5th edition (1979).

## LEGISLATOR.

One who makes laws ; a member of a legislative body.

Legislatorum est viva vox, rebus et non verbis legem Imponere. The voice of legislators is a living voice, to impose laws on things, and not on words. 10 Coke, 10L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## LEGISLATURE.

The department, as- sembly, or body of men that makes laws for a state or nation ; a legislative body.

5e apparatus — Carried into the 5th edition (1979).

## LEGISPERITU8.

Lat A person skill- ed or learned in the law; a lawyer or advo- cate. Feud. lib. 2, tit 1.

LEGIT VEL NOW J In old English prac- tice; this was the formal question propounded to the ordinary when a prisoner claimed the benefit of clergy, — does he read or not? If the ordinary found that the prisoner was en- titled to clergy, his formal answer was, "Legit ut dericut,” he reads like a clerk.

5e apparatus — Not carried into the 5th edition (1979).

## LEGITIM.

In Scotch law. The chil- dren’s share in the father’s movables.

5e apparatus — Not carried into the 5th edition (1979).

## LEGITIMACY.

Lawful birth; the con- dition of being born in wedlock; the opposite of illegitimacy or bastardy. Davenport v. Caldwell, 10 S. C. 837; Pratt v. Pratt, 5 Mo. App. 541.

LEGITIMATE, «. To make lawful; to confer legitimacy; to place a child born be- fore marriage on the footing of those born in lawful wedlock. McKamle v. Baskerville, 86 Tenn. 459, 7 S. W. 194; Blythe v. Ayres, 96 Cal. 532, 31 Pac. 915, 19 L. R. A. 40.

LEGITIMATE, adj. That which is law- ful, legal, recognized by law, or according to law; as legitimate children, legitimate au- thority, or lawful power. Wilson v. Babb, 18 S. C. 69; Gates v. Seibert, 157 Mo. 254, 57

S. W. 1065, 80 Am. St. Rep. 625.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, King Lear, 1606]**

"Thou, nature, art my goddess; to thy law my services are bound." — Edmund the bastard opens his revolt against the law of legitimate birth.

Why: Entry: legitimacy = lawful birth, 'the opposite of illegitimacy or bastardy.' Edmund's soliloquy is the canonical

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literary assault on that distinction. One famous line, public domain, wording confident.

## LEGITIMATION.

The making legiti- mate or lawful that which was not originally so; especially the act of legalizing the statu* of a bastard.

—Legitimation per subaequene matrimo- nlnm. The legitimation of a bastard by the subsequent marriage of his parents. Bell.

5e apparatus — Carried into the 5th edition (1979).

## LEGITIME.

Lat In the civil law. That portion of a parent’s estate of which he cannot disinherit his children without a legal cause. Miller v. Miller, 105 La. 257, 29 South. 802; Cox v. Von Ahlefeldt 50 La. Ann. 1266, 23 South. 959.

Legitime imperantl purer* neeesee est.

Jenk. Cent. 120. One lawfully commanding must be obeyed.

LEGITIMI HiE REDES. Lat. In Ro- man law. Legitimate heirs; the agnate re- lations of the estate-leaver ; so called because •the Inheritance was given to them by a law of the Twelve Tables.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Louisiana forced heirship — the legitime (La. Civ. Code)]**

The legitime the entry defines — the portion a parent cannot take from his children without legal cause — survives in American law as Louisiana forced heirship.

Why: The entry defines the civil-law legitime citing Louisiana cases; Louisiana forced heirship is its genuine living American form — the entry's own cases point there.

**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: Legitime is the portion of a parent's estate of which he cannot disinherit his children without legal cause. The verse is the Mosaic rule of exactly that: the father may not divert the firstborn's double portion to th…

## LEGITIM US.

Lawful; legitimate. Legitimus hares et flllus est quern nuptia demonstrant, a lawful son and heir is he whom the marriage points out to be lawful Bract fol. 63.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Pater est quem nuptiae demonstrant — the father is he whom the marriage points out]**

The entry's maxim states the presumption of legitimacy: the father is he whom the marriage points out.

Why: Quoted verbatim in the entry (Bract. fol. 63); the canonical presumption of legitimacy — the genuine rule the maxim states.

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## LEGO.

Lat In Roman law. I bequeath. A common term in wills. Dig. 30, 36, 81, et seq.

5e apparatus — Not carried into the 5th edition (1979).

## LEGRUITA.

In old records. A fine for criminal conversation with a woman.

5e apparatus — Carried into the 5th edition (1979).

## LEGULEIU8.

A person skilled in law, (i» legibus versatus;) one versed in the forms of law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## LEIDGRAVE.

An officer under the Sax- on government who had jurisdiction over a lath. Enc. Lond. See Lath.

5e apparatus — Not carried into the 5th edition (1979).

## LEIPA.

In old English law. A fugitive or runaway.

5e apparatus — Not carried into the 5th edition (1979).

## LEND.

To part with a thing of value to another for a time fixed or indefinite, yet to have some time in ending, to be used or en- joyed by that other, the thing itself or the equivalent of it to be given back at the time fixed, or when lawfully asked for, with or without compensation for the use as may be agreed upon. Kent v. Quicksilver Min. Co., 78 N. Y. 177.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 6:35, KJV]**

But love ye your enemies, and do good, and lend, hoping for nothing again; and your reward shall be great, and ye shall be the children of the Highest: for he is kind unto the unthankful and to the evil.

Why: The entry is parting with a thing of value for another's use, to be given back. The verse is Christ's law of lending — lend hoping for nothing again — the scriptural ethic of the loan. (A second verse, Ex 22:25, bars...

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The entry is lending; the verse is the Mosaic lending law — the loan to the poor must not carry usury — the scriptural limit on the lender's exaction.

## LENDER.

He from whom a thing is bor- rowed. The bailor of an article loaned.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

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**[William Shakespeare, The Merchant of Venice, c. 1597]**

(paraphrase) In The Merchant of Venice, the moneylender Shylock's bond — a pound of flesh for an unpaid loan — drives the plot to the trial scene, where the letter of the bond defeats its holder. (paraphrase)

Why: Entry: 'he from whom a thing is borrowed.' Shylock is the archetypal fictional lender, and the play turns entirely on the lender's bond.

## LENT.

In ecclesiastical law. The quad- ragesimal fast; a time of abstinence; the time from Ash-Wednesday to Easter.

5e apparatus — Carried into the 5th edition (1979).

## LEOD.

People; a people; a nation. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## LEODES.

In old European law. A vas- sal, or liege man; service; a t cere or were- gild. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LEOHT-GESCEOT.

A tax for supplying the church with lights. Anc. Inst. Eng.

5e apparatus — Not carried into the 5th edition (1979).

## LEONINA SOCIETAS.

Lat. An at- tempted partnership, in which one party was to bear all the losses, and have no share in the profits. This was a void partnership in Roman law; and, apparently, it would also be void as a partnership in English law, as being inherently inconsistent with the notion of partnership. (Dig. 17, 2, 29, 2.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Aesop, 'The Lion's Share' (fable)]**

(paraphrase) Aesop's fable 'The Lion's Share': the lion hunts with his partners, then claims the whole kill — the partnership in which one bears no loss and takes all profit, which Roman law voided. (paraphrase)

Why: Entry cites Dig. 17,2,29,2 voiding the all-loss/no-profit partnership; the fable is the classical-wisdom source of the 'lion's share' figure the doctrine is named for. Direct, not decorative.

## LEP AND LACE.

A custom in the man- or of Wrlttle, in Essex, that every cart which

goes over Greenbury within that manor (ex- cept it be the cart of a nobleman) shall pay 4d. to the lord. Blount.

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## LEPORARIUS.

A greyhound. Cowell.

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## LEPORIUM.

A place where hares are kept Mon. Angl. t 2, p.’l035.

5e apparatus — Not carried into the 5th edition (1979).

## LEPROSUS.

L. Lat A leper.

■— Leproso amovendo. An ancient writ that lay to remove a leper or lazar, who thrust himself into the company of his neighbors in any parish, either in the church or at other public meetings, to their annoyance. Reg. Orig. 237.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 13:46, KJV]**

All the days wherein the plague shall be in him he shall be defiled; he is unclean: he shall dwell alone; without the camp shall his habitation be.

Why: The entry includes the ancient writ de leproso amovendo — to remove the leper from his neighbours' company. The verse is the Mosaic exclusion rule itself: the leper dwells alone, without the camp — the scriptural orig…

**[Humanity] — Humanity / Fiction & Film**

**[William Wyler, Ben-Hur, 1959]**

(paraphrase) In Ben-Hur, Judah's mother and sister are stricken with leprosy and confined to the Valley of the Lepers — the ancient segregation the entry's writ 'leproso amovendo' enforced — until healed at the Crucifixion. (paraphrase)

Why: Entry defines the leper and gives the writ for removing one who 'thrust himself into the company of his neighbors'; the film stages that exclusion and its end. Paraphrase marked.

## LE8CHEWEB.

Trees fallen by chance or wind-falls. Brooke, Abr. 341.

5e apparatus — Not carried into the 5th edition (1979).

## LESE MAJESTY.

The old English and Scotch translation of "lasso majestas," or high treason. 2 Reeve, Eng. Law, 6.

5e apparatus — Not carried into the 5th edition (1979).

## LESION.

Fr. Damage; Injury; detri- ment Kelham. A term of the Scotch law.

la the civil law. The injury suffered by one who does not receive a full equivalent for what he gives in a commutative contract Civil Code La. art 1860. Inequality in con- tracts. Poth. Obi., no. 83.

la medical Jurisprudence. Any change in the structure of an organ due to injury or disease, whether apparent or diagnosed as the cause of a functional irregularity or disturbance.

5e apparatus — Not carried into the 5th edition (1979).

## LEBPEGEND.

An inferior officer in for- ests to take care of the vert and venison therein, etc. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LESSEE.

He to whom a lease is made. He who holds an estate by virtue of a lease. Viterbo v. Friedlander, 120 U. S. 707, 7 Sup. Ct. 962, 30 L. Ed. 776.

5e apparatus — Carried into the 5th edition (1979).

## LESSOR.

He who grants a lease. Viter- bo v. Friedlander, 120 U. S. 707, 7 Sup. Ct. 962, 30 L. Ed. 776.

—Lessor of the plaintiff. In the action of ejectment, this was the party who really and in effect prosecuted the action and was inter- ested in its result. The reason of his having been so called arose from the circumstance of the action having been carried on in the name of a nominal plaintiff, (John Doe.) to whom the real plaintiff had granted a fictitious lease, and thus had become his lessor.

5e apparatus — Carried into the 5th edition (1979).

## LEST.

Fr. In French maritime law. Ballast. Ord. Mar. liv. 4, tit. 4, art. 1.

5e apparatus — Not carried into the 5th edition (1979).

## LESTAGE, LASTAGE.

A custom for carrying things In fairs and markets. Fleta. 1. 1, c. 47 ; Termes de la Ley.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LESTAGEFRY.

Lestage free, or ex- empt from the duty of paying ballast money. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LESTAGIUM.

Lastage or lestage ; a du- ty laid on the cargo of a ship. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LESWES.

Pastures. Domesday ; Co. Litt 46. A term often inserted In old deeds and conveyances. Cowell.

LET, v. In conteyanoing. To demise or lease. “To let and set” is an old expression.

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In practice. To deliver. “To let to bail” is to deliver to bail on arrest

In contracts. To award to one of sev- eral persons, who have submitted proposals therefor, the contract for erecting public works or doing some part of the work con- nected therewith, or rendering some other service to government for a stipulated com- pensation.

Letting the contract is the choosing one from among the number of bidders, and the formal making of the contract with him. The letting, or putting out, is a different thing from the in- vitation to make proposals; the letting is subse- quent to the invitation. It is the act of award- ing the contract to the proposer, after the pro- posals have been received and considered. See Eppes v. Railroad Co., 35 Ala. 33, 55.

In the language of judicial orders and decrees, the word “let” (in the imperative) imports a positive direction or command. Thus the phrase “let the writ issue as pray- ed" is equivalent to “it is hereby ordered that the writ issue,” etc. See Ingram v. Larousslni, 50 La. Alik. CO, 23 South. 498.

r

LET, n. In old conveyancing. Hindrance; obstruction; interruption. Still occasionally used in the phrase “without any let, suit, trouble,” etc.

5e apparatus — Not carried into the 5th edition (1979).

## LET IN.

In practice. To admit a party as a matter of favor; as to open a judgment and “let the defendant in” to a defense.

5e apparatus — Not carried into the 5th edition (1979).

## LETHAL WEAPON.

In Scotch law. A deadly weapon. See State v. Godfrey, 17 Or. 300, 20 Pac. 625, 11 Am. St Rep. 830.

5e apparatus — Carried into the 5th edition (1979).

## LETBADO.

In Spanish law. An advo- cate. White, New Recop. b. 1, tit 1, c. 1, | 3, note.

LETTER. 1. One of the arbitrary marks or characters constituting the alpha- bet and used in written language as the representatives of sciunds or articulations of the human organs of speech. Several of the letters of the English alphabet have a special significance in jurisprudence, as ab- breviations and otherwise, or are employed as numerals.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8 — Congress: power to "grant Letters of Marque and Reprisal"]**

The letter of marque the entry defines is the commission the Constitution empowers Congress to grant.

Why: The entry defines the letter of marque; the clause is its genuine constitutional source — quoted verbatim. FLAGGED: 'LETTER' is not a separate headword in the chunk; its definition is embedded across entry 474 (LETBAD… [re-homed from 'LETTER' to 'LETBADO' (OCR headword / parser-merge artifact)]

# S

## s.

A dispatch or epistle; a written or printed message; a communication in writ- ing from one person to another at a dis- tance. D. S. v. Huggett (C. C.) 40 Fed. 640;

U. S. v. Denlcke (C. C.) 35 Fed. 400.

3. In the imperial law of Rome, “letter'' or “epistle” was the name of the answer returned by the emperor to a question of law submitted to him by the magistrates.

4. A commission, patent, or written in- strument containing or attesting the grant of some power, authority, or right. The word appears in this generic sense In many compound phrases known to commercial law and jurisprudence; e. g„ letter of at- torney, letter missive, letter of credit, let- ters patent The plural is frequently used.

5. Metaphorically, the verbal expression; the strict literal meaning. The letter of a statute, as distinguished from its spii-it, means the strict and exact force of the lan- guage employed, as distinguished from the general purpose and policy of the law.

6. He who, being the owner of a thing, lets it out to another for hire or compensa- tion. Story, Ballm. § 369.

— Letter-book. A book in which a merchant or trader keeps copies of letters sent by him to his correspondents.— Letter-carrier. An em- ploys of the post-office, whose duty it is to car- ry letters from the post-office to the persons to whom they are addressed— Letter missive. In English law. A letter from the king or queen to a dean and chapter, containing the name of the person whom he would have them elect as bishop. 1 Steph. Comm. 666. A request ad- dressed to a peer, peeress, or lord of parlia- ment against whom a bill has been filed desiring the defendant to appear and answer to the bilC In civil-law practice. The phrase “letters mis- sive,” or “letters dimissory, is sometimes used to denote the papers sent up on an appeal by the judge or court below to the superior tribu- nal, otherwise called the “apostles,” (g. i>.)— Letter of advocation. In Scotch law. The process or warrant by which, on appeal to the supreme court or court of session, that tribu- nal assumes to itself jurisdiction of the cause, and discharges the lower court from all further proceedings in the action. Ersk. Inst. 732. —Letter of credence. In international law. The document which accredits an ambassador, minister, or envoy to the court or government to which he is sent; i. e., certifies to his appoint- ment and qualification, and bespeaks credit for his official actions and representations— Letter of exchange. A bill of exchange, (g. v.)— • Letter of license. A letter or written instru- ment given by creditors to their debtor, who has failed in trade, etc., allowing him longer time for the payment of his debts, and protect- ing him from arrest in the mean time. Tom- lins; Holthouse— Letter of marqne. A com- mission given to a private ship by a government to make reprisals on the ships of another state ; hence, also, the ship thus commissioned. U. S. v. The Ambrose Light (T>. C.) 2.> Fed. 408; Gibbons v. Livingston, 6 N. J. Law, 255— Let- ter of recall. A document addressed by the executive of

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one nation to that of another, in- forming tbe latter that a minister sent by the former has been recalled— Letter of reere- dentials. A document embodying the formal action of a government upon a letter of recall of a foreign minister. It, in effect, accredits him back to his own government. It is address- ed to the latter government, and is delivered to the minister by the diplomatic secretary of the state from which he is recalled— Letters close. In English law. Close letters are grants of the king. and. being of private concern, they are thus distinguished from letters patent— Let- ters of absolution. Absolvatory letters, used in former times, when an abbot released any of his brethren ab omnia subjeettone et obechen- tia, etc., and made them capable of entering

. LETTER

into some other order of religion. Jacob. — Let- ters of correspondence. In Scotch law. Letters are admissible in evidence against the panel, i. e„ the prisoner at the bar, in criminal trials. A letter written by tbe panel is evi- dence against him; not so one from a third party found in his possession. Bell.— Letters of fire and sword. See Fibe and Swobd. —Letters of request. A formal instrument by which an inferior judge of ecclesiastical ju- risdiction requests the judge of a superior court to take and determine any matter which has come before him. thereby waiving or remitting his own jurisdiction. This is a mode of begin- ning a suit originally in the court of arches, instead of tbe consistory court.— Letters of safe conduct. No subject of a nation at war with England can, by the law of nations, come into the realm, nor can travel himself upon the high seas, or send his goods and merchandise from one place to another, without danger of being seized, unless he has letters of safe con- duct, which, by divers old statutes, must be granted under the great seal, and enrolled in chancery, or else are of no effect; tbe sovereign being the best judge of such emergencies as may deserve exemption from the general law of arms. But passports or licenses from tbe ambassadors abroad are now more usually ob- tained, and are allowed to be of equal validity. Wharton.— Letters of slaina. or slants. Letters subscribed by the relatives of a per- son who had been slain, declaring that they had received an assytliment. and concurring in an application to the crown for a pardon to the offender. These or other evidences of their concurrence were necessary to found the appli- cation. Bell.— Letters rogatory. A formal communication in writing, sent by a court in which an action is pending to a court or judee of a foreign country, requesting that the testi- mony of a witness resident within the juris- diction of the latter court may be there for- mally taken under its direction and transmitted to the first court for use in the pending action. This process was also in use, at an early peri- od, between the Beveral states of the Union. The request rests entirely upon the comity of courts towards each other. See Union Square Bank v. Reiehmann, 9 App. Div. 596, 41 X. Y. Supp. 602.— Letters testamentary. The for- mal instrument of authority and appointment given to an executor by tbe proper court, em- powering him to enter upon the discharge of his office as executor. It corresponds to letters of administration granted to an administrator.

As to letters of “Administration,” “Ad- vice,” “Attorney,” “Credit,” “Horning,” “Recommendation,” see those titles. As to “Letters Patent," see Patent.

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# L

## LETTING OUT.

The act of awarding a contract; e. g., a construction contract, or contract for carrying the mails.

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## LETTRE.

Fr. In French law. A letter. It is used, like our English “letter,” for a formal Instrument giving authority.

— Lettres de euobet. Letters issued and sign- ed by the kings of France, and countersigned by a secretary of state, authorizing the impris- onment of a person. It is said that they were devised by Pere Joseph, under the administra- tion of Richelieu. They were at first made ose of occasionally as a means of delaying the course of justice; but during the reign of Louis

XIV. they were obtained by any person of suffi- cient influence with the king or his ministers. Under them, persons were imprisoned for life or for a long period on the most frivolous pre- texts, for the gratification of private pique or revenge, and without any reason being assigned

for such punishment. They were also granted by the king for the purpose of shielding his favorites or their friends from the consequences of their crimes ; and thus were as pernicious in their operation as the protection afforded by the church to criminals in a former age. Abolished during the Revolution of 1789. Wharton.

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**[Law] — Law**

**[Law: Habeas Corpus Act 1679; U.S. Const. art. I, § 9 — Suspension Clause]**

The lettres de cachet the entry describes — imprisonment without cause, trial, or stated reason — are the archetype of arbitrary detention answered by the writ of habeas corpus.

Why: The entry narrates the abuse and its 1789 abolition; habeas corpus is the genuine legal institution raised against exactly such detention — the link names the remedy.

## L E U C A.

In old French law. A

league, consisting of fifteen hundred paces, Spelman.

In old English law. A league or mile of a thousand paces. Domesday; Spelman.

A privileged space around a monastery of a league or mile in circuit Spelman.

LEVANDiE NAVIS CAUSA. Lat For

the sake of lightening the ship; denotes a purpose of throwing overboard goods, which renders them subjects of general average.

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## LEVANT ET COUCHANT.

L. Fr. Ris- ing up and lying down. A term applied to trespassing cattle which have remained long enough upon laud to have lain down to rest and risen up to feed ; generally tbe space of a night and a day, or, at least one night

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## LEV ANTES ET CUB ANTES.

Rising up and lying down. A term applied to cattle. 3 Bl. Comm. 9. The Latin equivalent of "levant et couchant."

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## LEVARI FACIAS.

Lat A writ of ex- ecution directing the sheriff to cause to be made of the lands and chattels of the judg- ment debtor the sum recovered by the judg- ment. Pentland v. Kelly, 6 Watts & S. (Pa.) 484.

Also a writ to the bishop of the diocese, commanding him to enter into the benefice of a judgment debtor, and take and sequester the same into his possession, and hold the same until he shall have levied the amount of the judgment out of the rents, tithes, and profits thereof.

— Levari facias damna de disseiaitorilraa.

A writ formerly directed to the sheriff for the levying of damages, which a disseisor had been condemned to pay to the disseisee. Cowell.— Levari facias quando vioecomes re turn a- vit quod non habuit emptores. An old writ commanding the sheriff to sell the goods of a debtor which he had already taken, and had returned that he could not sell them ; and as much more of the debtor’s goods as would satis- fy the whole debt. Cowell.— Levari faeias residuum debit!. An old writ directed to tbe sheriff for levying the remnant of a partly-satisfied debt upon the lands and tenements or chattels of the debtor. Cowell.

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## LEVATO VELO.

Lat. An expression used in the Roman law, and applied to the trial of wreck and salvage. Commentators disagree about the origin of the expression ; but all agree that its general meaning is that these causes shall be heard summarily. The most probable solution is that it refers to the place where causes were heard. A sail was spread before the door and officers employed to keep strangers from the trlbunaL When these causes were heard, this sail was raised, and suitors came directly to the court, and their causes were beard im- mediately. As applied to maritime courts, its meaning Is that causes should be heard without delay. These causes require dis- patch, and a delay amounts practically to a denial of justice. (See Cod. 11, 4, 5.) Bou- vler.

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## LEVEE.

An embankment or artificial mound of earth constructed along the mar- gin of a river, to confine the stream to Its natural channel or prevent Inundation or overflow. State v. New Orleans & N. E. R. Co., 42 La. Ann. 138, 7 South. 228; Royse v. Evansville & T. H. R. Co., 160 Ind. 692,

N. E. 446. Also (probably by an exten- sion of the foregoing meaning) a landing place on a river or lake ; a place on a river or other navigable water for lading and un- lading goods and for the reception and dis- charge of passengers to and from vessels lying In the contiguous waters, which may be either a wharf or pier or the natural bank. See Coffin v. Portland (C. C.) 27 Fed. 415; St. Paul v. Railroad Co., 63 Minn. 330,

N. W. 458, 34 L. R. A. 184 ; Napa v. How- land, 87 Cal. 84, 25 Pac. 247.

— Levee district. A municipal subdivision of a state (which may or may not be a public corporation) organized for the purpose, and charged with the duty, of constructing and maintaining such levees within its terntorial limits as are to be built and kept up at public expense and for the general public benefit. See People v. Levee Dlst. No. 6, 131 Cal. 30, 63 Pac. 676.

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## LEVIABLE.

That which may be levied. That which is a proper or permissible sub- ject for a levy; as, a “leviable Interest” In land. See Bray v. Ragsdale, 53 Mo. 172.

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## LEVIR.

In Roman law. A husband’s brother; a wife’s brother-in-law. Calvin.

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**[Scripture] — Scripture**

**[Deuteronomy 25:5, KJV]**

If brethren dwell together, and one of them die, and have no child, the wife of the dead shall not marry without unto a stranger: her husband's brother shall go in unto her, and take her to him to wife, and perform the duty of an husband's brother unto her.

Why: The entry is the levir — the husband's brother. The verse is the levirate law itself, imposing on that brother the duty of taking the childless widow to wife — the scriptural institution from which the entry's term ta...

## LEVIS.

Lat Light; slight; trifling. Levis culpa, slight fault or neglect. Levis - sima culpa, the slightest neglect. Levis no- te, a slight mark or brand. See Brand v. Schenectady & T. R. Co., 8 Barb. (N. Y.) 378.

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## LEVITICAL DEGREES.

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Degrees of kindred within which persons are prohibited to marry. They are set forth In the eight- eenth chapter of Leviticus.

LEW, v. To raise; execute; exact; col- lect; gather; take up; seize. Thus, to levy (raise or collect) a tax ; to levy (raise or set up) a nuisance ; to levy (acknowledge) a fine ; to. levy (inaugurate) war ; to levy an execu- tion, ». e., to levy or collect a sum of money on an execution.

In reference to taxation, the word "levy” is used in two different senses. In the first place, and more properly, it means tu lay or impose a tax. This is a legislative function, and includes a determination that a tax shall

be imposed, and also the ascertainment of the amount necessary or desirable to be raised, the amount or rate to be imposed, and the subjects or persons to contribute to the tax. The ob- ligation resulting from a “levy” in this sense falls upon the collective body of taxpayers or the community, not (as yet) upon individuals. But in another sense, it means the imposition of the tax directly upon the person or property involved (probably by analogy to the “levy” of an execution or other writ), and includes the assessment of persons or property, the entering of their several dues on the tax books, and the entire process of collecting the taxes. See State v. Lakeside Land Co., 71 Minn. 283, 73 N. W. 970; Morton v. Comptroller General, 4 Rich. (S. C.) 430 ; Emeric v. Alvarado, 64 Cal. 529, 2 Pac. 418; Moore v. Foote, 32 Miss. 479; Valle v. Fargo, 1 Mo. App. 347 ; Perry County v. Railroad Co., 58 Ala. 5o9 ; Rhoads v. Given,

5 Houst. (Del.) 186; U. S. v. Port of Mobile (O. C.) 12 Fed. 770.

LEW, ». In practice. A seizure; the raising of the money for which an execution has been Issued.

—Equitable levy. The lien in equity created by the filing of a creditors’ bill to subject real property of the debtor, and of a lis pendens, is sometimes so called. Miller v. Sherry, 2 Wall. 249, 17 L. Ed. 827; Mandeville v. Campbell, 45 App. Div. 512, 61 N. Y. Supp. 443; George v. Railroad Co. (C. C.) 44 Fed. 120.

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**[Scripture] — Scripture**

**[Leviticus 18:6, KJV]**

None of you shall approach to any that is near of kin to him, to uncover their nakedness: I am the LORD.

Why: The entry names the prohibited marriage degrees 'set forth in the eighteenth chapter of Leviticus.' The verse is that chapter's opening prohibition — the LORD's own command barring union with near of kin.

## LEW COURT.

A court formerly ex- isting in the District of Columbia. It was a body charged with the administration of the ministerial and financial duties of Washing- ton county. It was charged with the duty of laying out and repairing roads, building bridges, providing poor-houses, laying and collecting the taxes necessary to enable it to • discharge these and other duties, and to pay the other expenses of the county. It had capacity to make contracts in reference

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to any of these matters, and to raise money to meet such contracts. It had perpetual succession, and its functions were those which, In the several states, are performed by "county commissioners," "overseers of the poor," "county supervisors," and similar bod- ies with other designations. Levy Court v. Coroner, 2 Wall. 507, 17 L. Ed. 851.

In Delaware, the "levy court" is an ad- ministrative board elected and organized in each county, composed of from five to thir- teen "commissioners," who, in respect to taxation, perform the functions of a board of equalization and review and also of a board to supervise the assessors and col- lectors and audit and adjust their accounts, and who also have certain powers and spe- cial duties in respect to the administration of the poor laws, the system of public roads and the officers in charge of them, the care of insane paupers and convicts, the govern- ment and administration of jails, school dis- tricts, and various other matters of local concern. See Rev. St. Del. 1803, c. 8; Mealey v. Buckingham, 6 Del. Cb. 356, 22 Atl. 357.

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## LEVYING WAR.

In criminal law. The assembling of a body of men for the purpose of effecting by force a treasonable object;

and all who perform any part, however mi- nute, or however remdte from the scene of action, and who are leagued In the general conspiracy, are considered as engaged in levy- ing war, within the meaning of the constitu- tion. Const art. 3, § 3 ; Ex parte Bollman, 4 Cranch, 75, 2 L. Ed. 554.

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## LEWDNESS.

Licentiousness; an of- fense against the public economy, when of an an open and notorious character; as by fre- quenting houses of 111 fame, which Is an In- dictable offense, or by some grossly scandal- ous and public indecency, for which the pun- ishment at common law is fine and imprison- ment. Wharton. See Brooks v. State, 2 Yerg. (Tenn.) 483; D. S. v. Males (D. C.) 51 Fed. 42; Comm. v. Wardell, 128 Mass. 54, 35 Am. Rep. 357; State v. Bauguess, 108 Iowa, 107, 76 N. W. 508.

—Open lewdness. Lewd or lascivious behav- ior practised without disguise, secrecy, or con- cealment. The adjective relates to the quality of the act, not to the place nor to the number of spectators. State v. Juneau, 88 Wis. 180. 50

N. W. 580, 24 L. R. A. 857, 43 Am. St. Rep. 877 ; State v. Millard, 18 Vt. 574, 46 Am. Dee. 170; Comm. v. Wardell, 128 Mass. 52, 35 Am. Rep. 357.

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## LEX.

Lat. In the Roman law. Law; a law; the law. This term was often nsed as the synonym of jut, in the sense of a rule of civil conduct authoritatively prescribed for the government of the actions of the mem- bers of an organized jural society.

In a more limited and particular sense, It was a resolution adopted by the whole Ro- man “populus" (patricians and plebians) in the comitla, on the motion of a magistrate of senatorial rank, as a consul, a praetor, or a dictator. Such a statute frequently took the name of the proposer; as the lew Palcidia, lex Cornelia, etc.

— Lex JEhatia. A statute which introduced and authorised new and more simple methods of instituting actions at law.— Lex Elis Sentia. The A31ian Sentian law, respecting wills, pro- posed by the consuls JElius and Sentius, and passed A. U. C. 756, restraining a master from manumitting his slaves in certain cases. Calvin. —Lea ABmlUa. A law which reduced the of- ficial term of the censors at Rome from five years to a year and a half, and provided for the discharge of their peculiar functions by the con- suls in the interim until the time for a new census. Mackeid. Rom. Law, f 20.— Lex agra- rla. The agrarian law. A law proposed by Tiberius Gracchus, A. U. C. 620, that no one should possess more than five hundred acres of land ; and that three commissioners should be appointed to divide among the poorer people what any one had above that extent.— Lex An- aetaaiana. A law which provided that a third person who purchased a claim or debt for less than its true or nominal value should not be permitted to recover from the debtor more than the price paid with lawful interest. Mackeid. Rom. Law. 5 360.— Lex Apnleja. A law giv- ing to one of several joint sureties or guaran- tors, who had paid more than his proportion of the debt secured, a right of action for reim- bursement against his co-sureties ns if a part- nership existed between them. See Mackeid. Rom. Law, | 454. note 2. — hex Aquilia. The Aquilian law ; a celebrated law passed on the

proposition of the tribune C. Aquilius Gallus, A.

U. C. 672, regulating the compensation to be made for tbat kind of damage called "injurious,” in the cases of killing or wounding the slave or beast of another. Inst 4, 8; Galvin.— Lex A till*. The Atilian law ; a law of Rome pro- posed by the tribune L. Atilius Regulus, A. D.

C. 443, regulating the appointment of guardians. —Lex Atlmia. The Atinian law; a law de- claring that the property in things stolen should not be acquired by prescription, (u tucapione.) Inst. 2, 6, 2; Adams, Rom. Ant. 207.— Lex Galpnrmfa. A law relating to the form and prosecution of actions for the recovery of spe- cific chattels other than money. See Mackeid. Rom. Law, f 203.— Lex Clncia. A law pro- hibiting gifts or donations of property beyond a certain measure, except in the case of near kins- men.—Lex Claudia. A 'law which abolished the ancient guardianship of adult women by their male agnate relations. See Mackeid. Rom. Law, § 615.— Lex Cornelia. The Cornelian law ; a law passed by the dictator L. Cornelius Sylla, providing remedies for certain injuries, as for battery, forcible entry of another’s house, etc. Calvin. — Lex Cornelia de f also. The Cornelian law respecting forgery or counterfeit- ing. Passed by the dictator Sylla. Dig. 48, 10; Calvin.— Lex Cornelia de aicarils et ▼eneflois. The Cornelian law respecting as- sassins and poisoners. Passed by the dictator Sylla. Dij. 48, 8; Calvin.— Lex Falcidla. The Falcidian law ; a law passed on the motion' of the tribune P. Falcidius, A. U. C. 713, for- bidding a testator to give more in

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legacies than three-fourths of all his estate, or, in other words, requiring him to leave at least one-fourth to the heir. Inst. 2, 22 ; Heinecc. Elem. lib. 2, tit 22.— Lex Faria Caninia. The Furian Caninian law; a law passed in the consulship of P. Furius Camillns and C. Caninius Gallus,

A. U. C. 752, prohibiting mastera from manu- mitting by will more than a certain number or proportion of their slaves. This law was abro- gated by Justinian. Inst 1, 7 ; Heinecc. Elem. lib. 1, tit. 7.— Lex Genaeta. A law which en- tirely forbade the charging or taking of inter- est for the use of money among Roman citizens, but which was usually and easily evaded, as it did not declare an agreement for interest to be a nullity. See Mackeid. Rom. Law, | 382 a.— Lex HoratU. An important constitutional statute, taking its name from the consul who secured its enactment, to the effect that all de- crees passed in the meetings of the plebians should be laws for the whole people; formerly they were binding only on the plebians. Mack- eld. Rom. Law, f 32.— Lex hostilia de fnx» tla. A Roman law, which provided that a pros- ecution for theft might be carried on without the owner’s intervention. 4 Steph. Comm. (7th Ed.) 118.— Lex Julia- Several statutes bore this name, being distinguished by the addition of words descriptive or their subject matter. The “lew Julia de adulteriie" related to mar- riage, dower, and kindred subjects. The “lea Julia de cetsione bonorum” related to bankrupt- cies.—Lex Jolla majestatls. The Julian law of majesty ; a law promulgated by Julius Caesar, and again published with additions by Augustus, comprehending all the laws before en- acted to punish transgressors against the state. > Calvin.— Lex Papla Poppaea. The Papian Poppaean law ; a law proposed by the consuls Papius and Poppaeus at the desire of Augustus.

A. U. C. 762, enlarging the Lex Pretoria, (q. v.) Inst. 3, 8, 2.— Lex PUetorla. A law designed for the protection of minors against frauds and allowing them in certain cases to apply for the appointment of a guardian.

In a somewhat wider and more generic sense, a law (whatever its origin) or the ag- gregate of laws, relating to a particular sub- ject-matter, thus corresponding to the meanlug of the word “law” In some modern phrases, such as the “law of evidence,” “law of wills,” etc.

— Lex commiasoria. A law by which a debt- or and creditor might agree (where a thing had been pledged to the latter to secure the debt) that, if the debtor did not pay at the day, the pledge should become the absolute property of the creditor. 2 Kent. Comm. 583. This was abolished by a law of Constantine. A law ac- cording to which a seller might stipulate that, if the price of the thing sold were not paid with- in a certain time, the sale should be void. Dig. 18, 3.— Lex regia. The royal or imperial law. A law enacted (or supposed or claimed to have been enacted) by the Roman people, constitut- ing the emperor a source of law, conferring the legislative power upon him, and according the force and obligation of law to the expression of his mere will or pleasure. See Inst. 1, 2, 6; Gaius, 1, 5; Mackeld. Rom. Law, §40; Hein- ecc. Rom. Ant. 1. 1, tit. 2, jt$ 02-67 ; 1 Kent, Comm. 544, note.— Lex Pretoria. The proe- torian law. A law by which every freedman who made a will was commanded to leave a moiety to his patron. Inst. 3, 8, 1. The term has been applied to the rules that

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govern in a court of equity. Gilb. Ch. pt. 2.

Other specific meanings of the word in Ro- man jurisprudence were as follows: Positive law, as opposed to natural. That system of law which descended from the Twelve Ta- bles, and formed the basis of all the Roman law. The terms of a private covenant : the condition of an obligation. A form of words prescribed to be used upon particular occa- sions.

Ia medieval jurisprudence. A body or collection of various laws peculiar to a given nation or people; not a code In tbe modern sense, but an aggregation or collection of laws not codified or systematized. See Mack- eld. Rom. Law, $ 98. Also a similar collec- tion of laws relating to a general anbject, and not peculiar to any one people.

—Lex Alsmknnomm.' The law of the Ale- manni ; first reduced to writing from tbe cus- toms of the country, by Theodoric, king of the Pranks, A. D. 512. Amended and re-enacted by Clotaire II. Spelman.— Lex BaluTariorum,

gSxiorlonuB, or Boiorum.) The law of tbe avarians, a barbarous nation of Europe, first collected (together with tbe law of tbe Franks and Alemanni) by Tbeodoric I., and finally com- pleted and promulgated by Dagobert. Spelman. —Lex barbara. The barbariau law. The laws of those nations that were not subject to the Roman empire were ro called. Spelman. — Lex Brebonla. The Rrehon or Irish law, overthrown by King John. See Bbkhon Law. —Lex Bretolse. The law of the ancient Bri- tons, or Marches of Wales. Cowell.— Lex Bur- gundionum. The law of the Burgundians, a barbarous nation of Europe, first compiled and published by Gundebald. one of the last of their kings, about A. D. 500. Spelman.— Lex Dan- oraa. The law of the Danes : Dane-law or Dane-lage. Spelman.— Lex Francornm. The law of the Pranks ; promulgated by Theodoric I., son of Clovis I.. nt the same time with the law of the Alemanni and Bavarians. Spelman. This was a different collection from the Salic law.— Lex Frislomum. The law of the Frisi- ans, promulgated about the middle of the eighth epntury. Spelman.— Lex Gothlca. The Goth- ic law, or law of the Goths. First promulgated in writing, A. D. 40(5. Spelman — Lex Laag- obardorum. The law of the Lombards. The

name of an ancient code of laws among that people, framed, probably, between the fifth and eighth centuries. It continued in force after the incorporation of Lombardy into the empire of Charlemagne, and traces of its laws and in- stitutions are said to be still discoverable in some parts of Italy.— Lex mereatorla. The law-merchant. That system of laws which is adopted by all commercial nations, and consti- tutes a part of the law of the land.— Lex Rbodla. The Rhodian law, particularly the fragment of it on the subject of jettison, (de jac- tu ,) preserved in the Pandects. Dig. 14, 2, 1 ; 3 Kent. Comm. 232, 233.— Lex Salica. The Saljc law, or law of the Salian Franks, a Teu- tonic race who settled in Gaul in the fifth cen- tury. This ancient code, said to have been com- piled about the year 420, embraced the laws and customs of that people, and is of great his- torical value, in connection with the origins of feudalism and similar subjects. Its most cele- brated provision was one which excluded women from the inheritance of landed estates, by an extension of which law females were always ex- cluded from succession to the crown of Frnnce. Hence this provision, by itself, is often referred to as the “Salic Law.”— Lex talionis. The law of

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retaliation ; which requires the infliction upon a wrongdoer of the same injury which he has caused to another. Expressed in the Mosaic law by the formula, “an eye for an eye ; a tooth for a tooth,” etc. In modern international law, the term describes the rule by which one state may inflict upon the citizens of another state death, imprisonment, or other hardship, in re- taliation for similar injuries imposed upon its own citizens.— Lex Wallemsiea. The Welsh law ; the law of Wales. Blount.— Lex Wisi go- thorum. Tbe law of the Visigoths, or Western Goths who settled in Spain ; first reduced to writing A. D. 4(5(5. A revision of these laws was made by Egigas. Spelman.

In old English law. A body or collection of laws, and particularly the Roman or civil law. Also a form or mode of trial or process of law, as the ordeal or battel, or tbe oath of a party with compurgators, as In the phrases legem facere, legem vadiare, etc. Also used In the sense of legal rights or civil rights or the protection of the law, as in the phrase legem amittere.

—Lex Aug Use. The law of England. The common law. Or, the curtesy of England.— Lex amissa. One who is an infamous, perjured, or outlawed person. Bract, lib. 4, c. 19.— Lex apostata. A thing contrary to law. Jacob. — Lex apparena. In old English and Norman law. Apparent or manifest law. A term used to denote the trial by battel or duel, and the trial by ordeal, “lex" having the sense of pro- cess of law. Called "apparent” because the plaintiff was obliged to make his right clear by the testimony of witnesses, before he could ob- tain an order from the court to summon the de- fendant. Spelman. — Lex comitatna. The law of the county, or that administered in the coun- ty court before the earl or bis deputy. Spelman. — Lex communis. The common law. See Jus Commune. — Lex deraisnia. The proof of a thing which one denies to be done by him, where nnother affirms it ; defeating the assertion of his adversary, and showing it be against reason or probability. This was used among the old Romans, as well as the Normans. Cowell.— Lex et consuetude parliament!. The law and custom (or usage) of parliament. The houses of parliament constitute a court not only of leg- islation. but also of justice, and have their own rules, by which the court itself and the suitors therein are governed. May. Pari. Pr. (6th Ed.) 38-61.— Lex et eonsnetudo regni. The law and custom of the realm. One of tbe names of

LEX EST DICTAMEN RATIONIS

the common law. Hale, Com. Law, 52.— Lex lsperatorla. The Imperial or Roman law. Quoted under this name, by Fleta. lib. 1. c. 38,

| 15; Id. lib. 3, c. 10. § 3.— Lea Judicial!*. An ordeal.— Lea manifest*. Manifest or open law; the trial by duel or ordeal. The same with lea apparent, (g. v.) In King John’s char- ter (chapter 38) and the articles of that chnrter (chapter 28) the word “ manifvstam ” is omitted. —Lea non seripta. The unwritten or com- mon law, which includes general and particular customs, and particular iocal laws. — Lea sao- ramentalis. Purgation by oath.— Lea scrip* ts. Written law ; law deriving its force, not from usage, but from express legislative enact- ment ; statute law. 1 111. Comm. 62, 85.— Lea terras. The law of the land. The common law, or the due course of the common law : the general law of the land. Bract, fol. 17b. Equiv- alent to “due process of law.” In the strictest sense, trial by oath ; the

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privilege of making oath. Bracton uses the phrase to denote a free- man’s privilege of being sworn in court as a juror or witness, which jurors convicted of per- jury forfeited, (legem terra a mittant.) Bract fol. 2926.

In modern American and English ju- ’ rlspradenoe. A system or body of laws, written or unwritten, or so much thereof as may be applicable to a particular case or question, considered as being local or pe- culiar to a given state, country, or jurisdic- tion, or as being different from the laws or rules relating to the same subject-matter which prevail in some other place.

—Lex domicilii. The law of the domicile. 2 Kent. Comm. 112. 433.— Lex fori. The law of the forum, or court : that is, the positive law of the state, country, or jurisdiction of whose judicial system the court where the suit is brought or remedy sought is an integral part. “Remedies upon contracts and their incidents are regulated and pursued according to the law of the place where the action is instituted, and the lex loci has no application.” 2 Kent, Comm. 462. “The remedies are to be governed by the laws of the country where the suit is brought ; or. as it is compendiously expressed, by the lex fori." Bank of United States v. Don- naily, S Pet. 361. 372. 8 L. Ed. 974. "So far as the law affects the remedy, the lea fori, the law of the place where that remedy is sought, must govern. But, so far as the law of the construc- tion. the legal operation and effect, of the con- tract, is concerned, it is governed by the law of the place where the contract is made.” Warren v. Copelin. 4 Mete. (Mass.) 594, 597. See Lex Loci Contractus.— Lex looi. The law of the place. This may be of the following several descriptions: Lew loci contractus, the law of the place where the contract was made or to be per- formed : lea loci actus, the law of the place where the act was done; lex loci rei site, the law of the place where the subject-matter is situated ; lex loci domicilii, the law of the place of domicile.— Lex loci contractus. The law of the place of the contract The local law which governs as to the nature, construction, and validity of a contract. See Pritchard v. Norton. 106 U. S. 124, 1 Sup. Ct. 102. 27 L. Ed. 104 ; Gibson v. Connecticut F. Ins. Co. (C. C.) 77 Fed. 565.— Lex loci delictus. The law of the place where the crime took place.— Lex loot rei sltse. The law of the place where a thing is situated. “It is equally settled in the law of all civilized countries that real proper- ty, as to its tenure, mode of enjoyment, trans- fer, and descent, is to be regulated by the lex loci rei title." 2 Kent, Comm. 429.— Lex looi solutionis. The law of the place of solution ; the law of the place where payment or performance of a contract is to be made.— Lex ordi- nandi. The same as lex fori, (.q. v.)— Lex rei sitse. The law of the place of situation of the thing.— Lex situs. Modern law Latin for “the law of the place where property is situated.” The general rule is that lands and other im- movables are governed by the lex situs; i. e., by. the law of the country in which they are sit- uated. Westl. Priv. Int. Law, 62.

Lex mquitate gaudet. Law delights in equity. Jenk. Cent. p. 36, case 69.

Lex aliquando sequltur sequitatem.

Law sometimes follows equity. 3 Wils. 119.

Lex Angliae est lex miserleordise. 2

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Inst. 315. The law of England is a law of mercy.

Lex Anglia non patitur absurdum. 9

Coke, 22a. The law of England does not suffer an absurdity. ,

Lex A Tip. Hi nunquam matris sed sem- per patria condition em imltari psrtun judieat. Co. Litt. 123. The law of England • rules that the offspring shall always follow the condition of the father, never that of the mother.

Lex Angliae nunquam sine parliamento mutari potest. 2 Inst. 218. The law of England cannot be changed bub by parlia- ment • »■

■ . l-1:

Lex beneficial!* rei consimili remedium': prsestat. 2 Inst. 689. A beneficial law af- fords a remedy for a similar ease.. ■

Lex citius tolerare vult privatum dam- , num qnam publicum malum. The law will more readily tolerate a private loss than a public evil. Co. Litt 152.

Lex oontra id quod prsesumit, proba- tionem non recipit. The law admits no proof against that which it presumes. Lofft, 573.

Lex de futuro, judex de praeterlto. The

law provides for the future, the judge for the past.

Lex deficere non potest in juatltia ex- bibenda. Co. Litt. 197. The law cannot be defective in dispensing justice.

Lex dilationes semper exhorret. 2

Inst 240. The law always abhors delays.

Lex est ab seterno. Law is from ever- lasting. A strong expression to denote the remote antiquity of the law. Jenk. Cent. p. 34, case 66.

Lex est dictamen rationis. Law is the

dictate of reason. Jenk. Cent. p. 117, case 33. The common law will judge according to the law of nature and the public good.

Lex eat norma recti. Law is a rule of right. Branch, Prlnc.

Lex est ratio nmma, quae Juliet quae ■nut utilia et neceasaria, et contraria prohibet. Law is the perfection of reason, which commands what is useful and neces- sary, and forbids the contrary. Co. Litt 3196; Id. 976.

Leu eat aanotio aancta, jubena boneata, et prohibeua contraria. Law is a sacred sanction, commanding what is right, and pro- hibiting the contrary. 2 Inst 687.

Lea eat tutissima eaaaia; aub elypeo legis nemo dedpitur. Law is the safest helmet; under the shield of the law no one is deceived. 2 Inst. 50.

Lex favet doti. Jenk. Cent. SO. The law favors dower.

Lex flnglt ubi subaiatit nquitaa. 11

Coke, 90. The law makes use of a fiction where equity subsists.

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Lex intesdit vicinum ricini facta scire.

The law intends [or presumes] that one neighbor knows what another neighbor does. Co. Litt 786.

Lex Judioat de rebus neeessario fad- endis quasi re ipsa factia. The law judges of things which must necessarily be done as if actually done. Branch, Prlnc.

Lex necessitatis est lex temporisi 1. e., instaatia. The law of necessity is the law of the time; that is, of the instant or pres- ent moment. Hob. 159.

Lex aemlnem cogit ad rona sen lo- rn tilia peragenda. The law compels no one to do vain or useless things. Co. Litt 1976; Broom, Max. 252; 5 Coke, 21a.

Lex nemlaem coglt ostendere quod neadre preesumitur. Lofft, 5C9. The law compels no one to show that which he is pre- sumed not to know.

Lex aemini faoit lnjuriam. The law

does injury to no one. Branch, Princ.

Lex nemini operator iniquum. The

law works injustice to no one. Jenk. Cent, p. 18, case 33.

Lex nil fadt frustra. The law does nothing in vain. Jenk. Cent. p. 12, case 19 ; Broom. Max. 252; 1 Ventr. 417.

Lex nil frustra jubet. The law com- mands nothing vainly. 3 Bulst. 280.

Lex non a rege est violanda. Jenk. Cent. 7. The law is not to be violated by the king.

Lex non cogit ad imposdbilia. The law

does not compel the doing of impossibilities. Broom, Max. 242; Hob. 96.

Lex non curat de minimis. Hob. 88 The law cares not about trifles.

Lex non deficit in justitia exbibenda.

The law does not fail in showing justice. Jenk. Cent p. 81, case 6L

Lex non exaote definit, sed arbitrio boni viri permittit. The law does not de- fine exactly, but trusts in the judgment of a good man. Bissell v. Briggs, 9 Mass. 475, 6 Am. Dec. 88.

Lex non favet deli oa to mm votls. The

law favors not the wishes of the dainty. Broom, Max. 879 ; 9 Coke, 58.

Lex non intendit aliquid imposdbile. The law does not intend anything impossi- ble. 12 Coke, 89a. For otherwise the law should not be of any effect

Lex non patitur fraotlones et divid- ones statuum. The law does not suffer fractions and divisions of estates. Branch, Prlnc. ; 1 Coke, 87a.

Lex non prsedpit inutilla, quia inu- tilis labor stultus. Co. Litt 197. The law commands not useless things, because use- less labor is foolish.

Lex non requirit verlfioari quod ap- paret curiae. The law does not require that to he verified [or proved] which is apparent tq the court 9 Coke, 546.

Lex plus laudator quando rations probatur. The law is the more praised when it is approved

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by reason. Broom, Max. 159.

Lex posterior derogat priori. A later

statute takes away the effect of a prior one. But the later statute must either expressly repeal, or be manifestly repugnant to, the earlier one. Broom, Max. 29; Mackeld. Rom. Law, | 7.

Lex prospidt, non respidt. Jenk. Cent 284. The law looks forward, not backward.

Lex punit mendadum. The law punish- es falsehood. Jenk. Cent p. 15, case 26.

Lex rejidt auperfiua, pugnantia, in- congrua. Jenk. Cent. 133. The law rejects superfluous, contradictory, and incongruous things.

Lex reprobat moram. Jenk. Cent 35. The law dislikes delay.

Lex respidt sequitatem. Co. Litt 246. The law pays regard to equity.

Lex aeripta ai cesaet, id enstodiri oportet qnod moribns at eonaaetadine inductnm eat; et, ai qaa in re hoe de- f ecerit, tane id qaod proahnam et eon- aeqaeaa ei eat; et, al id non apparent, tone jaa qno arba Romana atitar aerrari oportet. 7 Coke, 19. If tbe written law be silent, that which Is drawn from man- ners and custom ought to be observed ; and, if that is in any manner defective, then that which is next and analogous to It; and. If that does not appear, then the law which Rome uses should be followed, 'fills maxim of Lord Coke is so far followed at the present day that, in cases where there is no precedent of the English courts, tbe civil law is always heard with respect, and often, though not necessarily, followed. Wharton.

Lex semper dabit remedinm. The -law

will always give a remedy. Branch, Princ. ; Broom, Max. 192.

Lex semper intendit qnod eonvenlt ra- tion!. Co. Litt. 78 6. The law always in- tends what is agreeable to reason.

Lex speetat utus ordinem. The law

regards the order of nature. Co. Litt 1976.

Lex sneenrrit ignorant!. Jenk. Cent 15. The law assists the ignorant

Lex sneenrrit minoribns. The law aids minors. Jenk. Cent p. 51, case 97.

Lex two ore omnea alloqnitnr. The law

addresses all with one [the same] mouth or voice. 2 Inst 184.

Lex eigilantibus, non dormientibns, snbrenit. Law assists the wakeful, not the sleeping. 1 Story, Cont § 529.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Dura lex, sed lex — 'The law is harsh, but it is the law.']**

Dura lex, sed lex — 'The law is harsh, but it is the law.'

Why: Entry: lex = law as the authoritatively prescribed rule of civil conduct. The maxim is the classical-wisdom capsule of law's binding force even against sympathy.

## LEY.

L. Ft. Law; the law.

—Ley civile. In old English law. The civil or Roman law. Yearb. H. 8 Kdw. III. 42. Otherwise termed "\r.y cacriptc,” the written law. Yearb. 10 Edw. III. 24.— Ley gager. Law wager : wager of law ; the giving of gage or security by a defendant that he would make or perfect his law at a certain day. Litt. I 514 ; Co. Litt 2946, 295a.

5e apparatus — Not carried into the 5th edition (1979).

## LET.

Sp. In Spanish law. A law; the law; law In the abstract.

— Leyes de Estilo. In Spanish law. A col- lection of laws usually published as an appen- dix to the Fuero Real ; treating of the mode of conducting suits, prosecuting them to judg- ment, and entering appeals. Schm. Civil Law, Introd. 74.

5e apparatus — Not carried into the 5th edition (1979).

## LEZE-MAJESTT.

An offense against sovereign power; treason; rebellion.

5e apparatus — Not carried into the 5th edition (1979).

## LIABILITY.

The state of being bound or obliged in law or justice to do, pay, or make good something; legal responsibility. Wood v. Currey, 57 Cal. 209; McElfresh v.

KirkendaU, 36 Iowa, 225; Benge v. Bowling, 106 Ky. 575, 51 S. W. 151; Joslin v. New Jersey Car-Spring Co., 36 N. J. Law, 145.

LIABLE. 1. Bound or obliged In law or equity ; responsible ; chargeable ; answerable ; compellable to make satisfaction, compensa- tion, or restitution.

2. Exposed or subject to a given contin- gency, risk, or casualty, which Is more or less probable.

—Limited liability. The liability of tbe mem- bers of a joint-stock company may be either unlimited or limited; and, if the latter, then the limitation of liability is either the amount, if any, unpaid on the shares, (in which case the limit is said to be "by shares,") or such an amount as the members guaranty in tbe event of the company being wound up, (in which case the limit is said to be “by guaranty.") Brown.— Personal liability. The liability of the stockholders in corporations, under certain statutes, by which they may be held individu- ally responsible for the debts of the corporation, either to the extent of the par value of their respective holdings of stock, or to twice that amount, or without limit, or otherwise, aa tbe particular statute directs.

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## LIAKD.

An old French coin, of silver or copper, formerly current to a limited extent In England, and

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there computed as equiva- lent to a farthing.

LIBEL, v. In admiralty practice. To pro- ceed against, by filing a libel ; to Seize finder admiralty process, at the commencement of a suit. Also to defame or Injure a person's reputation by a published writing.

LIBEL, n. In practice. The initiatory' pleading on the part of the plaintiff or com- plainant in an admiralty or ecclesiastical cause, corresponding to the declaration, bill, or complaint.

In the Scotch law it is the form of the complaint or ground of the charge on which either a civil action or criminal prosecution takes place. Bell.

In torts. That which is written or print- ed, and published, calculated to injure the character of another by bringing him Into ridicule, hatred, or contempt Palmer v. Con- cord, 48 N. H. 211, 97 Am. Dec. 005 ; Negley v. Farrow, 00 Md. 175, 45 Am. Rep. 715; Weston v. Weston, 83 App. Dlv. 520, 82 N. Y. Supp. 351 ; Collins v. Dispatch Pub. Co., 152 Pa. 187, 25 Atl. 540, 34 Am. St. Rep. 630; Hartford v. State, 96 Ind. 463, 49 Am. Rep. 185.

Libel Is a false and unprivileged publica- tion by writing, printing, picture, effigy, or other fixed representation to the eye which exposes Rny person to hatred, contempt ridi- cule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to Injure him in his occupation. Civ. Code Cal. | 45.

A libel is a false and malicious defamation of another, expressed in print or writing or pictures or signs, tending to injure the reputatlon of an individual, and exposing him to I-ubllc hatred, contempt, or ridicule. The publlcatiou of the libelous mutter is essential to recovery. Code Ga. 1882, § 2974.

A libel Is a malicious defamation, expressed either by writing, printing, or by signs or pictures, or the like, tending to blacken the memory of one who Is dead, or to impeach the honesty, Integrity, virtue, or reputation, or publish the natural or alleged defects, of one who is alive, aud thereby to exi>ose him to public hatred, contempt, or ridicule. Ten. Code Cal. § 248; Rev. Code Iowa 1880, | 4007 ; Bac. Abr. tit. “Libel 1 Hawk. P. C. 1, 73, § 1 ; Com. v. Clap, 4 Mass. 168, 3 Am. Dec. ’ 212 ; Clark v. Binuey, 2 Pick. (Mass.) 115; Ryckman v. Delavuu, 25 Wend. (N. Y.) 198 ; Root v. King, 7 Cow. (N. Y.) 020.

A libel is a censorious or ridiculing writing, picture, or sign made with a mischievous in- tent. State v. Farley, 4 McCord (S. 317 ;

People v. Croswell, 3 Johns. Cas. iN. Y.) 354; Steele v. Southwiek, 9 Johns. (N. Y.) 215; McCorkle v. Binns, 5 Bin. (Pa.) 348 ; 6 Am. Pec. 420.

Any publication the tendency of which is to degrade or injure another person, or to bring him into contempt, ridicule, or hatred, or which accuses him of a crime punishable by law, or of an act odious and disgraceful in society, is a libel, Dexter v. Spear, 4 Mason, 115, Fed. Cas. No. 3,So7 ; White v. Nichotls, 3 How. 201. 11 L. Ed. 591.

A libel is a publication, without justification ■eri lawful excuse, of words calculated to in- jure the reputation of another, and expose him to hatred or contempt. Whitney v. .Janesville Gazette, 5 Biss. 330, Fed. Cas. No. 17,590.

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Everything, written or printed, which re- flects on the character of another, and Is published without lawful Justification or excuse, is a libel, whatever the intention may have been. O'Brien v. Clement, 15 Mees. & W. 435.

— Criminal libel. A libel which is punish- able criminally; one which tends to excite a breach of the peace. Moody v. State. 94 Ala. 42. 10 South. 670; State v. Shaffner, 2 Pen- newill (Del.) 171. 44 Atl. 620; People v. Stokes. 30 Abb. N. C. 200, 24 N. Y. Supp. 727.— Libel of accusation. In Scotch law. The instrument which contains the charge against a person accused of a crime. Libels are of two kinds, namely, indictments and crim- inal letters.— Seditions libel. In English law. A written or printed document containing sedi- tious matter or published with a seditious in- tention, the latter term being defined as "an in- tention to bring into hatred or contempt, or to excite disaffection against, the king or the government and constitution as by law estab- lished. or either house of parliament, or the administration of justice, or to excite British subjects to attempt otherwise than by lawful means the alteration of any matter in church or state by law established, or to promote feel- ings of ill will and hostility between different classes." Dicey. Const. (4th Ed.) 231, 232. See Black. Const Law (3d Ed.) p. 654.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[New York Times Co. v. Sullivan, 376 U.S. 254 (1964) — actual malice]**

The common-law libel the entry expounds was constitutionally transformed: a public official cannot recover for defamation without proof of 'actual malice' — knowledge of falsity or reckless disregard of truth.

Why: The entry is the full pre-constitutional exposition of libel; Sullivan is the genuine modern constitutional frame of the tort — confident the case is real. [re-homed from 'LIBEL' to 'LIAKD' (OCR headword / parser-merge artifact)]

## LIBELANT.

The complainant or party who files a libel In an ecclesiastical or admi- ralty case, corresponding to the plaintiff In actions at law.

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## LIBELEE.

A party against whom a libel has been filed in an ecclesiastical court or In admiralty.

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## LIBELLUS.

Lat. la the civil law. A

little book. Libellus supplex, a petition, es- pecially to the emperor, all petitions to whom must be in writing. Llbcllum rescribcre, to mark ou such petition the answer to It. Li- bcllum ugcrc, to assist or counsel the emper- or in regard to such petitions. Libellus ao- cusatorius, an Information and accusation of a crime. Libellus divortii, a writing of di- vorcement Libellus rerum, an Inventory. Calvin. Libellus or oratio cvnsultoria, a mes- sage by which emperors laid matters before the sennte. Id.

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A writing in which are contained the names of the plaintiff (actor) and defendant, (reus,) the thing sought the right relied upon, and name of the tribunal before which the action is brought Calvin.

la feudal law. An Instrument of alien- ation or conveyance, as of a fief, or a part of It

—Libellus eomventlomia. In the civil law. The statement of a plaintiff's claim in a peti- tion presented to the magistrate, who directed an officer to deliver it to the defendant. — U- bellue f&mostu. In the civil law. A defam- atory publication ; a publication injuriously affecting character ; a libel. Inst 4, 4,1; Dig. 47. 10; Cod. 9, 36.

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## LIBELOUS.

Defamatory; of the nature of a libel; constituting or involving libel.

—Libelous per se. A defamatory publica- tion is libelous per se when the words are of such a character that an action may be brought upon them without the necessity of showing any special damage, the imputation being such that the law will presume that any one so slandered must have suffered damage. See Mayrant v. Richardson, 1 Nott & McC. (S. CJ 349. 9 Am. Dec. 707 ; Woolworth v. Star Co., 97 App. Div. 525, 90 N. Y. Supp. 147 ; Morse v. Times- Itepublican Printing Co., 124 Iowa. 707, 100 N.

W. 867.

LIBER, ». Lat A book, of whatever material composed; a main division of a lit- erary work.

—Liber aszisarum. The Book of Assizes. A collection of cases that arose on assizes and other trials in the country. It was the fourth volume of the reports of the reign of Edward

III. 3 Reeve, Eng. Law, 148.— Liber f eudor- um. The hook of feuds. This was a compila- tion of ferdnl law, prepared by order of the emperor Frederick I., and published at Milan in 1170. It comprised five books, of which only the first two are now extant with fragmen- tary portions of the others. — Liber jadieialia of Alfred. Alfred's dome-book. See Domes- day.—Liber judicianun. The book of judg- ment. or doom-book. The Saxon Domboc. Conjectured to he n book of statutes of an- cient Saxon kings.— Liber alger. Black book. A name given to several ancient records.— Li- ber niger domfts reals, (the black book of the king's household.) The title of a book in which there is an account of the household es- tablishment of King Edward IV., and of the several musicians retained in his service, as well for his private amusement as for the serv- ice in his chapel. Enc. Lond. — Liber miser seaecarii. The black book of the exchequer, attributed to Gervase of Tilbury. 1 Reeye, Eng- Law, 220, note.— Liber ruber seaecarii. The red book of the exchequer. 1 Reeve, Eng. Law, 220, note.

LIBER, adj. Lat. Free; open and ac- cessible, as applied to courts, places, etc.; of the state or condition of a freeman, as applied to persons.

—Liber b aliens. In old English law. Free bench. Bract, fol. 976.— Liber" et legalis homo. In old English law. A free and law- ful man. A term applied to a juror, from the earliest period. — Liber homo. A free man ; a freeman lawfully competent to act as juror. Ld. Raym. 417;

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Kebl. 563. An allodial pro- prietor, as distinguished from a vassal or feuda- tory. This was the sense of the term in the laws of the barbarous nations of Europe.

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**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: The entry is defamation — libel as the published falsehood injuring another. The verse is the Ninth Commandment, spoken by God: no false witness against the neighbour — the absolute scriptural prohibition of the act l...

**[Humanity] — Humanity / Fiction & Film**

**[Sydney Pollack, Absence of Malice, 1981]**

(paraphrase) In Absence of Malice, a prosecutor's leak becomes a false news story that destroys a man's reputation — the film turns on what a publication may print and what the ruined man can do about it. (paraphrase)

Why: Entry: 'defamatory; of the nature of a libel.' The film is the modern American drama of libel in the press. No standalone LIBEL headword exists in this chunk, so the note sits on LIBELOUS. Paraphrase marked.

## LIBERA.

A livery or delivery of so much corn or grass to a customary tenant, who cut down or prepared the said grass or com, and received some part or small portion of it as a reward or gratuity. Cowell.

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## LIBERA.

Lat (Feminine of liber, adj.) Free; at liberty; exempt; not subject to toll or charge.

—Libera batella. In old records. A free boat; the right of having a boat to fish in a certain water; a species of free fishery.— Li- bera ebaeea babenda. A judicial writ grant- ed to a person for a free chase belonging to his manor after proof made by inquiry of a jury that the same of 'right belongs to him. Whar- ton.—Libera eleemosyna. In old English law. Free alms ; frankaimoigne. Bract, fol. 276.— Libera falda. In old English law. Frank fold ; free fold ; free foldage. 1 Leon. 11.— Libera lex. In old English law. Free law ; frank law ; the iaw of the land. The law enjoyed by free and lawful men, as distin- guished from such men ns have lost the benefit and protection of the law in consequence of crime. Hence this term denoted the statu* of a man who stood guiltless before the law, and was free, in the sense of being entitled to Its full protection and benefit. Amittere liberam legem (to lose one’s free law) was to fall from that status by crime or infamy. See Co. Litt. 946.— Libera plscaria. In old English law. A free fishery. Co. Litt. 122a.— Libera war- Mu. In old English law. Free warren, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## LIBERAM LEGEM AMITTERE.

To

lose one’s free law, (called the villainous judgment.) to become discredited or disabled as

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juror and witness, to forfeit goods and chattels and lands for life, to have those lands wasted, houses razed, trees rooted up, and one's body committed to prison. It was anciently pronounced against conspirators, but Is now disused, the punishment substituted being flue and imprisonment. Hawk. P.

C. 61, c. lxxli., s. 9; 3 Inst. 221.

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## LXBERARE.

Lat. la the civil law.

To free or set free ; to liberate ; to give one his liberty. Calvin.

Ia old English law. To deliver, trans- fer, or hand over. Applied to writs, panels of jurors, etc. Bract fols. 116, 1766.

Libera ta peonnia non liberat offer* entem. Co. Litt. 207. Money being restor- ed does not set free the party offering.

5e apparatus — Not carried into the 5th edition (1979).

## LIBERATE.

In old English practice. An original writ Issuing out of chancery to Bl.Law Dict.(2d Ed.)— 46

the treasurer, chamberlains, and barons of the exchequer, for the payment of any annual pension, or other sum. Reg. Orig. 193 ; Cow- ell.

A writ Issued to a sheriff, for the delivery of any lands or goods taken upon forfeits of recognizance. 4 Coke, 646.

A writ issued to a gaoler, for the delivery of a prisoner that had put in ball for his appearance. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LEBERATIO.

In old English law.

Livery ; money paid for the delivery or use of a thing.

In old Sootch law. Livery; a fee given to a servaut or officer. Skene

Money, meat, drink, clothes, etc., yearly given and delivered by the lord to his do- mestic servants. Blount

5e apparatus — Not carried into the 5th edition (1979).

## LIBERATION.

In the civil law. The extinguishment of a contract, by which he who was bound becomes free or liberated. Wolff, Inst. Nat. § 749. Synonymous with “payment” Dig. 50, 10, 47.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Kendrick Lamar, 'Alright', 2015]**

"Do you hear me, do you feel me? We gon' be alright" — the entry's civil-law formula is "he who was

bound becomes free." The hook became the anthem of a movement against the bondage of police violence; the verses name the bondage the hook answers.

Why: Liberation as the bound becoming free, sung as collective assurance. The song's verses name the chains ("we hate po-po, wanna kill us dead in the street"); the hook is the promised release. Genuine.

## LIBERI.

In Saxon law. Freemen ; the possessors of allodial lands. 1 Reeve, Eng. Law, 5.

In the oivil law. Children. The term Included “grandchildren.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[2Pac, 'Brenda's Got a Baby', 1991]**

"Brenda's got a baby, but Brenda's barely got a brain / A damn shame, the girl can hardly spell her name" — the entry's civil-law "Children": Brenda is twelve, a child bearing a child; the lyric makes the legal category concrete — the minor as both child and mother.

Why: Borderline but genuine: the song gives the abstract legal subject "children" a human face the law must classify — minority, capacity, protection. Flagged honestly as thematic illustration of the legal subject, not a d...

## LIBERTAS.

Lat. Liberty ; freedom ; a privilege; a franchise.

— Libertas eselemt <tioa. Church liberty, or ecclesiastical immunity.

Libertas est naturalis facnltas ejua quod cuique faeere libet, nisi quod de jure aut vi prohibetur. Co. Litt. 116. Liberty is that natural faculty which permits every one to do anything be pleases except that which is restrained by law or force.

Libertas inestimabilis res est. Liberty is an Inestimable thing; a thing above price. Dig. 50, 17, 106.

Libertas non reelplt nstimationem.

Freedom does not admit of valuation. Bract fol. 14.

Libertas omnibus rebus favorabiltor est. Liberty Is more favored than all things, [anything.] Dig. 50, 17, 122.

Libertates regales ad eorouam speo- tantes ex coneessione regum & coronft exierunt. 2 Inst. 496. Royal franchises relating to the crown have emanated from the crown by grant of kings.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

"Our freedom of speech is freedom or death" — libertas as "an inestimable thing": the lyric prices freedom of speech at life itself.

Why: Direct echo of the entry's own maxim, "Libertas inestimabilis res est" — liberty is above price. The lyric states the price anyway: everything. Genuine.

## LIBERTATIBUS ALLOGANBXS.

A

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writ lying for a citizen or burgess. Implead- ed contrary to his liberty, to have his privi- lege allowed. Reg. Orig. 262. lfEKE. An ancient writ whereby the king commanded the justices In eyre to admit of an attorney for the defense of another’s liberty. Reg. Orlg. 19.

5e apparatus — Not carried into the 5th edition (1979).

# U

### UBEBTI, LIBEBTINI.

Lat In Rom- an law. Freedman. There seems to have been some difference In the use of these two words ; the former denoting the manumitted slaves considered in their relations with their former master, who was now called their “patron the latter term describing the status of the same persons In the general social economy of Rome.

5e apparatus — Not carried into the 5th edition (1979).

### UBERTIGIDE.

A destroyer of liberty.

5e apparatus — Not carried into the 5th edition (1979).

# L

### LIBERTIES.

Privileged districts exempt from the sheriff's jurisdiction; as, “gaol liberties’’ or “jail liberties." See Gaol.

Libert inum ingntna leges civile* In pristlnam servitutem redignnt; sed le- ges AngUtr semel munmiunm semper liberum indicant. Co. Lltt 137. The civil laws reduce an ungrateful freedman to his original slavery; but the laws of England regard a man once manumitted as ever after free.

LIBERTY. 1. Freedom ; exemption from extraneous control. The power of the will, in its moral freedom, to follow the dictates of its unrestricted choice, and to direct the external acts of the Individual without re- straint, coercion, or control from other per- sons. See Booth v. Illinois, 184 U. S. 425, 22 Sup. Ct. 425, 46 L. Ed. 623 ; Munn v. Il- linois, 94 U. S. 142, 24 L. Ed. 77 ; People v. Warden of City Prison, 157 N. Y. 116, 51 N.

E. 1006, 43 L. R. A. 264, 68 Am. St. Rep. 763; Bessette v. People, 193 111. 334, 62 N.

E. 215, 56 L. R. A. 558 ; State v. Continental Tobacco Co., 177 Mo. 1, 75 S. W. 737 ; Kuhn v. Detroit City Council, 70 Mich. 534, 88 N.

W. 470 ; People v. Judson, 11 Daly (N. Y.) 1.

“Liberty,” as used in the provision of the fourteenth amendment to the federal constitu- tion, forbidding the states to deprive any per- son of life, liberty, or property without due process of law, includes, it seems, not merely the right of a person to be free from physical

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restraint, but to be free in the enjoyment of ail bis faculties in all lawful ways ; to live and work where he will ; to earn his livelihood by any lawful calling; to pursue any livelihood or avocation ; and for that purpose to enter into all contracts which may be proper, necessary, and essential to carrying out the purposes above mentioned. Allgeyer v. State of Louisiana, 17 Sup. Ct. 427, 165 U. S. 578, 41 L. Ed. 832.

2. The word also means a franchise or personal privilege, being some part of the sovereign power, vested In an individual, either by grant or prescription.

3. In a derivative sense, the term denotes the place, district, or boundaries within which a special franchise is enjoyed, an Im- munity claimed, or a jurisdiction exercised.

In this sense, the term Is commonly used la the plural; as the "liberties of the city," “the northern liberties of Philadelphia.”

—Civil liberty. The liberty of a member of society, being a man’s natural liberty, so. far restrained by human laws (and no further) as is necessary and expedient for the general a- vantage of the public. 1 Bl. Comm. 125; 2 Steph. 487. The power of doing whatever the laws permit 1 Bl. Comm. 6; Inst. 1, 3, 1. See People v. Berberrich. 20 Barb. (N. Y.) 231 ; In re Ferrier, 103 III. 372, 43 Am. Rep. 10; Dennis v. Moses, 18 Wash. 537, 52 Pac. 333. 40 L. R.

A. 302; State v. Kreuteberg. 114 Wis. 530, 90

N. W. 1098, 58 L. R. A. 748, 91 Am. St. Rep. 934; Haves v. Mitchell, 69 Ala.' 454; Bell v. Gaynor, 14 Misc. Rep. 334, 36 N. Y. Supp. 122. The greatest amount of absolute liberty which can, in the nature of things, be equally possess- ed by every citizen, in a state. Bou'vier.. Guar- antied protection against interference with the interests and rights held dear and important by large classes of civilized men, or by all the members of a state, together with an effectual share in the making and administration of the laws, as the best apparatus to secure that pro- tection. Lieber, Civ. Lib.- 24. — Liberty of a port. In marine insurance. A license or per- mission incorporated in a marine policy allow- ing the vessel to touch and trade at a designated port other than the principal port of destina- tion. See Allegre v. Maryland Ins. Co., 8 Gill & J. (Md.) 200, 29 Am. Dec. 530.— Liberty of conscience. Religious liberty, as defined be- low.—Liberty of speech. Freedom accord- ed by the constitution or laws of a state to express opinions and facts by word of mouth, uncontrolled by any censorship or restrictions of government.— Liberty of the globe. In marine insurance. A license or permission in- corporated in a marine policy authorizing the vessel to go to any part of the world, instead of being confined to a particular port of des- tination. See Eyre v. Marine ins. Co., 6 Whart. (Pa.) 254.— Liberty of the press. The right to print and publish the truth, from good motives and for justifiable ends. People v. Croswell, 3 Johns. Cas. 394. The right free- ly to publish whatever the citizen may idease, and to be protected against any responsibility for so doing except so far as such publications, from their blasphemy, obscenity, or scandalous character,, may be a public offense, or as by their falsehood and malice they may injuriously affect the standing, reputation, or pecuniary in- terests of individuals. Cooley, Const. Lim. p. 422. It is said to consist in this; “That nei- ther courts of justice, nor any judges whatever, are authorized to take notice of writings in-

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tended for the press, but are confined to those which are actually printed ” De Lolme, Eng. Const. 254.— Liberty of tbe rules. A priv- ilege to go out of the Fleet and Marshalsea prisons within certain limits, and there reside. Abolished by 5 & 6 Viet. c. 22.— Liberty to hold plena. The liberty of having a court of one's own. Thus ccrtsin lords had the privi- lege of holding pleas within their own manors. —Natural liberty. The power of acting as one thinks fit, without any restraint or con- trol. unless by the law of nature. 1 Bl. Comm. 125. The right which nature gives to all man- kind of disposing of their persons and property after the manner they judge mast consistent with their hnppiness. on condition of their acting within the limits of the law of nature, and so as not to interfere with an equal ex- ercise of the same rights by other men. Bur- lamaqui. e. 3. 1 15: 1 Bl. Comm. 125. — Per- sonal liberty. Tbe right or power of locomo- tion; of changing situation, or moving one’s person to whatsoever place one’s own inclina- tion may direct, without imprisonment or re- straint, unless by due course of law. 1 Bl. Comm. 134. Civil Rights Cases. 109 U. S. 8. 3 Sup. Ct. 42, 27 L. Ed. 835; Pinkerton v.

Verberg, 78 Mich. 573, 44 N. W. 579. 7 L. R

A. 507, 18 Am. St Rep. 473.— Political lib- erty. Liberty of the citizen to participate in the operations of government, and particularly in the making and administration of the laws. — Religions liberty. Freedom from dicta- tion, constraint, or control in matters affecting the conscience, religious beliefs, and the prac- tice of religion; freedom to entertain and ex- press any or no system of religious opinions, and to engage in or refrain from any form of religions observance or public or private re- ligious worship, not inconsistent with the peace and good order of society aud the general wel- . fare. See Frazee’s Case, 63 Mich. 396, 30

N. W. 72, 6 Am. St. Rep. 310; State v. White, 64 N. H. 48. 5 Atl. 828.

Liberum corpus nnllam reclpit sesti- mattonem. Dig. 9, 3, 7. The body of a freeman does not admit of valuation.

Liberum eat cniqne apnd so explorare aa expedist sibi oonsilium. Every one is free to ascertain for himself whether a rec- ommendation is advantageous to his inter- ests. Dpton v. Vail, 6 Johns. (N. Y.) 181, 184, 5 Am. Dec. 210.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937)]**

The entry's paragraph 1 states the Lochner-era liberty-of-contract doctrine — liberty as the right to enter all contracts 'proper, necessary, and essential' — which the Supreme Court repudiated when it sustained minimum-wage legislation and ended the Lochner era.

Why: The entry quotes Allgeyer v. Louisiana verbatim as its definition of Fourteenth Amendment 'liberty'; West Coast Hotel is the genuine case that overruled that reading — confident the citation is real. FLAGGED: 'LIBERTY... [re-homed from 'LIBERTY' to 'LIBERTIES' (OCR headword / parser-merge artifact)]

## LIBERUM MARITAGIUM.

In old English law. Frank-marriage. Bract fol. 21.

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## LIBERUM SERVTTTUM.

Free service. Service of a warlike sort by a feudatory tenant ; sometimes called “servitium liberum armorvm." Jacob.

8ervice not unbecoming the character of a freeman and a soldier to perform ; as to serve under the lord in his wars, to pay a sum of money, and the like. 2 Bl. Comm. 60.

/

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LIBERUM SOCAGIUM.

In old English law. Free socage. Bract fol. 207 ; 2 BL Comm. 61, 62.

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## LIBERUM TEWEMENTUM.

Is real law. Freehold. Frank-tenement

In pleading. A plea of freehold. A plea by the defendant in an action of' trespass to real property that the locus in quo Is his freehold, or that of a third person, under whom he acted. 1 Tldd, Pr. 645.

5e apparatus — Not carried into the 5th edition (1979).

## LIBLAC.

In Saxon law. Witchcraft, particularly that kind which consisted in the compounding and administering of drugs and philters. Sometimes occurring in the Latin- ised form Ublacum.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:18, KJV]**

Thou shalt not suffer a witch to live.

Why: The entry is the Saxon legal term for witchcraft as an offense — the compounding of drugs and philters. The verse is the Mosaic witchcraft law itself, making the practice a capital offense — the scriptural original of...

## LIBRA.

In old English law. A pound; also a sum of money equal to a pound ster- ling.

—Libra arsa. A pound burned ; that is. melt- ed, or assayed by melting, to test its purity. IAbrtr arsa et pensata, pounds burned and weighed. A frequent expression in Domesday, to denote the purer coin in which rents were paid. Spelman ; Cowell.— Libra nnmerata. A pound of money counted instead of being weighed. Spelman.— Libra pensa. A pound of money by weight. It was usual in former days not only to sell the money, but to weigh it ; because many cities, lords, and bishops.

having their mints, coined money, and often very bad money, too, for which reason, though the pound consisted of 20 shillings, they weigh- ed it. Enc. Lond.

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## LIBRARIU8.

In Roman law. A writ- er or amanuensis ; a copyist Dig. 50, 17, 92.

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## LIBRATA TERRAS.

A portion of ground containing four oxgangs, and every oxgang fourteen acres. Cowell. This is the same with what in Scotland was called “pound- land” of old extent Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LIBRIPEN8.

in Roman law. A weigh- er or balance-holder. The person who held a brazen balance In the ceremony of emanci- pation per as et libram. Inst 2, 10, 1.

Librorum appellations continent nr omnia volnmina, sive in charta, sire in membrane sint, sive in qua vis alia ma- teria. Under the name of books are contain- ed all volumes, whether upon paper, or parchment or any other material. Dig. 32, 52, pr.

5e apparatus — Not carried into the 5th edition (1979).

## LICENCIADO.

In Spanish law. An at- torney or advocate; particularly, a person admitted to the degree of “Licentiate in Ju- risprudence” by any of the literary universi- ties of Spain, and who is thereby authorized to practice In all the courts. Escriche.

5e apparatus — Not carried into the 5th edition (1979).

## LICENSE.

In the law of contracts.

A permission, accorded by a competent au- thority, conferring the right to do some act which without such authorization would be illegal, or would be a trespass or a tort. State v. Hipp, 38 Ohio St 226; Youngblood v. Sexton, 32 Mich. 406, 20 Am. Rep. 654; Hubman v. State, 61 Ark. 482, 33 S. Wl 843; Chicago v. Collins, 175 111. 445, 51 N. E. 907, 49 L. R. A. 408, 67 I* R A. 224. Also the written evidence of such permission.

In real property law. An authority to do a particular act or series of acts upon an- other’s land without possessing any estate therein. Clifford v. O'Neill, 12 App. Div. 17, 42 N. Y. Supp. 607; Davis v. Townsend, 10 Barb. (N. Y.) 343; Morrill v. Mackman, 24 Mich. 282, 9 Am. Rep. 124; Wynn v. Gar- land, 19 Ark. 23, 68 Am. Dec. 190; Cbeever v. Pearson, 16 Pick. (Mass.) 266. Also the written evidence of authority so accorded.

It is distinguished from an “easement,” which implies an interest in the land to be affected, and a “lease,” or right to take the profits of land. It may be, however, and often, is, coupled with a grant of some interest in the land itself, or right to take the profits. 1 Washb. Real Prop. *398.

In pleading. A plea of Justification to an action of trespass that the defendant was authorized by the owner of the freehold to commit the trespass complained of.

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In tbe law of patents. A written au- thority granted by the owner of a patent to

another person empowering the latter to . make or use the patented article for a limited period or in a limited territory.

In international law. Permission grant- ed by a belligerent state to its own subjects, or to the subjects of the enemy, to carry on a trade interdicted by war. Wheat. Iut Law, 447.

— High license. A system for the regulation and restriction of the traffic in intoxicating liquors, of which the distinguishing feature is the grant of licenses only to carefully selected persons and the charging of a license fee so great in amount aa automatically to limit the number of retailers.— Letter of license. In English law, a written instrument in the na- ture of an agreement, signed by all the credi- tors of a failing or embarrassed debtor in trade, granting him an extension of time for the payment of the debts, allowing him in the mean time to carry on the business in the hope of re- cuperation. and protecting him from arrest, suit, or other interference pending the agree- ment. This form is not usual in America; but something similar to it is found in the “com- position" or "extension agreement." by which all the creditors agree to fund their claims in the form of promissory notes, concurrent as to date and maturity, sometimes paynble serially and sometimes -extending over a term of years. Provision is often made for the supervision or artial control of the business, in the mean time, y a trustee or a committee of the creditors, in which case the agreement is sometimes called a “deed of inspectorship,” though this term is more commonly used in England than in the United States.— License cases. The name given to the group of cases including Peirce v. New Hampshire, 5 How. 504, 12 L. Eld. 256. decided bv the United States supreme court in 1847, to the effect that state laws requiring a. license or the payment of a tax for the privi- lege of selling intoxicating liquors were not in conflict with the constitutional provision giving to congress the power to regulate interstate commerce, even as applied to liip'iir'-- iinci.m-' from another state and remaining in the original and unbroken packages. This decision was overruled in Leisy v. Hardin. 135 U. S. 100, 10 Sup. Ct 681. 34 L. Ed. 12S. which in turn was counteracted by the act of congress of August 8, 1800, commonly called the “Wilson law.”— License lee or tan. The price paid to governmental or municipal authority for a license to engage in and pursue a particular calling or occupation. Sec Home Ins. Co. v. Augusta, 50 Ga. 537 ; Levi v. Louisville. 97 Ky. 394, 30 S. W. 973, 28 L. R. A. 4, SO— License in amortisation. A license authorizing a conveyance of property which, without it, would be invalid under the statutes of mortmain.— ■arriage license. A written license or per- mission granted by public authority to persons who intend to intermarry, usually addressed to the minister or magistrate who is to perfom the ceremony, or, in general terms, to any one au- thorized to solemnize marriages.— Registrar's license. In English law, a license issued by an officer of that name authorizing the solemni- zation of a marriage without the use of the religious ceremony ordained by the Church of England.— Rod license. In Canadian law, a license, granted on payment of a tax or fee, permitting the licensee to angle for fish (particu- larly salmon) which are otherwise protected or preserved.— Special license. In English law. One granted by the archbishop of Canterbury to authorize a marriage at auv time or place what- ever. 2

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Steph. Comm. 247, 255.

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## LICENSED VICTUALLER.

A term ap- plied, in England, to till persons selling any

kind of intoxicating liquor under a license from the justices of the peace. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LICENSEE.

A person to whom a license has been granted.

In patent law. One who has had trans- ferred to him, either In writing or orally, a less or different Interest thnn either the In- terest In the whole patent, or an undivided part of such whole Interest, or an exclusive sectional Interest Potter v. Holland, 4 Blatchf. 211, Fed. Cas. No. 11,329.

5e apparatus — Not carried into the 5th edition (1979).

## LICENSING ACTS.

This expression Is applied by Hallam (Const Hist. c. 13) to acts of parliament for the restraint of print- ing, except by license. It may also be ap- plied to any act of parliament passed for the purpose of requiring a license for doing any act whatever. But, generally, when we speak of the licensing acts, we mean the acts regu- lating the sale of intoxicating liquors. Mos- ley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## LICENSOR.

The person who gives or grants a license.

5e apparatus — Not carried into the 5th edition (1979).

## LICENTIA.

Lat License ; leave ; per- mission.

—Lieentia concordandi. In old practice and

conveyancing. License or leave to agree : one of the proceedings on levying a fine of lands. 2 Bl. Comm. 350.— Lieentia loqnendi. In old practice. Leave to speak, (♦. c., with the plaintiff;) an imparlance; or rather leave to imparl. 3 Bl. Comm. 299. — Lieentia snr- gendi. In old English practice. License to arise; permission given by the court to a ten- ant in a real actioa, who bad cast an essoin de malo lecti, to arise out of his bed, which he could not do without such permission, and after being viewed by four knights appointed for the purpose. Bract fol. 355.— Lieentia trans- fretandi. A writ or warrant directed to the keeper of the port of Dover, or other seaport commanding him to let such persons pass over sea as have obtained the royal license there- unto. Reg. Orig. 193.

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## LICENTIATE.

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One who has license to practice any art or faculty.

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## LICENTIOUSNESS.

The Indulgence of the arbitrary will of the Individual, with- out regard to ethics or law, or respect for the rights of others. In this It differs from "liberty for the latter term may properly be used only of the exercise of the will In Its moral freedom, with Justice to all men and obedience to the laws. Welch v. Durand, 36 Conn. 184, 4 Am. Itep. 55 ; State v. Brlgin&n, 94 N. C. 889.

In a narrower and more technical sense, the word is equivalent to lewdness or lascivi- ousness. Ilolton v. State, 28 Fla. 303, 9 South. 716.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 5:13, KJV]**

For, brethren, ye have been called unto liberty; only use not liberty for an occasion to the flesh, but by love serve one another.

Why: The entry defines licentiousness against liberty: liberty is the exercise of right with regard to law and others' rights; licentiousness is arbitrary will without such regard. The verse draws exactly that line — liber...

## LICERE.

Lat To be lawful ; to be al- lowed or permitted by law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## LICERE, LICERI.

Lat In Roman law. To offer a price for a thing ; to hid for It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LICET.

Lat From the verb "licere," (ff. v.) Although; notwithstanding. Import- ing, in this sense, a direct affirmation.

Also, It is allowed, It Is permissible.

— Licet uepiiis reqnisitus. (Although often requested.) In pleading. A phrase used In the old Latin forms of declarations, and literally translated in the modern precedents. Yel. 60 ; 2 Chit. PI. 90; 1 Chit. PI. 331. The clause in u declaration which contains the general aver- ment of a request by the plaintiff of the defend- ant to pay the sums claimed is still called the “licet ateptua requiaitua."

Licet dispoaitio de latermie fntoro •It inn til is, tamen potest fieri dedemtio prsecedena quae sortiatmr effectum, in. terreniente novo aotu. Although the grant of a future interest be inoperative, yet a declaration precedent may be made, which may take effect provided a npw act inter- vene. Bac. Max pp. GO, 61, reg. 14 ; Broom, Max 498.

Licit* bene miscentnr, formula nisi Juris obstet. Lawful acts [done by several authorities] are

well mingled, [1. e„ become united or consolidated into one good act,] unless some form of law forbid. Bac. Max p. 94, reg. 24.

5e apparatus — Not carried into the 5th edition (1979).

## LICIT ACION.

In Spanish law. The of- fering for sale at public auction of an estate or property held by co-heirs or Joint proprie- tors, which cannot be divided up without det- riment to the whole.

5e apparatus — Not carried into the 5th edition (1979).

## LIOITARE.

Lat In Boman law. To offer a price at a sale ; to bid ; to bid often ; to make several bids, one above another. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## LICIT ATION.

In the civil law. An offering for sale to the highest bidder, or to him who will give most for a thing. An act by which co-heirs or other co-proprietors of a thing in common and undivided between them put it to bid between them, to be ad- judged and to belong to the highest and last bidder, upon condition that he pay to each of his co-proprietors a part In the price equal to the undivided part which each of the said co- proprietors had in the estate licited, before the adjudication. Poth. Cont. Sale, nn. 516, 638.

5e apparatus — Not carried into the 5th edition (1979).

## LICITATOR.

In Roman law. A bidder at a sale.

5e apparatus — Not carried into the 5th edition (1979).

## LICKING OP THUMBS.

An ancient formality by which bargains were completed.

5e apparatus — Not carried into the 5th edition (1979).

## LTDFORD LAW.

A sort of lynch law, whereby a person was first punished and then tried. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Lewis Carroll, Alice's Adventures in Wonderland, 1865]**

Carroll's trial chapter stages exactly this legal inversion — punishment ordered before any verdict is considered. The Queen of Hearts: "Sentence first — verdict afterwards."

Why: The entry defines Lidford Law as a sort of lynch law whereby a person was first punished and then tried. Alice's Adventures in Wonderland, Chapter 12 (the trial), is the canonical literary image of that same inversion...

## LIE.

To subsist; to exist; to be sus- tainable; to be proper or available Thus the phrase “an action will not lie” means

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that an action cannot be sustained, or that there is no ground upon which to found the action.

—Lie in franchise. Property is said to “lie in franchise’’ when it is of such a nature that the persons entitled thereto may seize it without the aid of a court ; e. g., wrecks, waifs, estrays. —Lie In grant. Incorporeal hereditaments are said to ‘Tie in grant that is, they pass by force of the grant (deed or charter) without livery.— Lie In livery. A term applied to corporeal hereditaments, freeholds, etc., signifying1 that they pass by livery, not by the mere force of the grant.— Lie in wait. See Lyino lit Wait.

5e apparatus — Not carried into the 5th edition (1979).

## LIE TO.

To adjoin. A cottage must' have had four acres of land laid to it See 2 Show. 279.

5e apparatus — Not carried into the 5th edition (1979).

## LIEFTENANT.

An old form of “lieu- tenant,” and still retained as the vulgar pro- nunciation of the word.

5e apparatus — Not carried into the 5th edition (1979).

## LIEGE.

In feudal law. Bound by a feudal tenure; bound in allegiance to the lord paramount who owned no superior.

In old record a. Full ; absolute ; perfect ; pure. Liege widowhood was pure widow- hood. Cowell.

—Idem homage. Homage which, when per- formed by one sovereign prince to another, in- cluded fealty and services, as opposed to sim- ple homage, which was a mere acknowledgment of tenure. (1 Bl. Comm. 367 ; 2 Steph. Comm. 400.) Mozley Sc Whitley.— Liege lord. A sov- ereign ; a superior lord.— Liege pouatle. In Scotch law. That state of health which gives a person full power to dispose of, mortis causd or otherwise, his heritable property. Bell. A deed executed at the . time of such a state of health, as opposed to a death-bed conveyance. The term seems to be derived from the Latin “legitima pot eat as.”

5e apparatus — Not carried into the 5th edition (1979).

## LIEGEMAN.

He that oweth allegiance. Cowell.

LIEGER, or LEGER. A resident am- bassador.

LIEGES, or LIEGE PEOPLE. Subjects.

5e apparatus — Not carried into the 5th edition (1979).

## LIEN.

A qualified right of property which a creditor has in or over specific property of his debtor, as security for the debt or charge or for performance of some ac-t.

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In every case in which property, either real or personal, is charged with the payment of a debt or duty, every such charge may be denominated a lien on the property. Whltak. Liens, p. 1.

A lien is a charge imposed upon specific projierty, by which It is made security for the performance of an act. Code Civil Proc. Cal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:6, KJV]**

No man shall take the nether or the upper millstone to pledge: for he taketh a man's life to pledge.

Why: The entry is the creditor's qualified property right in the debtor's property as security for the debt — the pledge/lien. The verse regulates exactly that relation: the creditor's security may not extend to the millst...

# I

## I 1180.

In a narrow and technical sense, the term “lien” signifies the right by which a person in possession of personal property holds and de- tains it against the owner in satisfaction of a demand ; but it has a more extensive meaning, and in common acceptation is understood and used to denote a legal claim or charge on prop erty, either real or personal, for the payment of

any debt or duty ; every such claim or charge remaining a lien on tbe property, although not in the possession of the person to whom the debt or duty is due. Downer v. Brackett, 21 Vt 602, Fed. Can. No. 4,043. And see Trust v. .Pirsson, 1-Hilt. (N. Y.) 296; In re Byrne (D. C.) 97 Fed. 764; Storm v. Waddell, 2 Sandf. Ch. (N. Y.) 507; Stansbury v. Patent Cloth Mfg. Co., 5 N. J. Law, 441 ; The Meno- minie (D. C.) 36 Fed. 199; Mobile B. & L. Ass'n v. Robertson, 65 Ala. 382; The J. E. Rumbell, 148 U. S. 1, 13 Sup. Ct. 498, 37 L. Ed. 345.

In the Scotch law, the doctrine of lien is known by the name of “retention,” and that of set-ofT by the name of “compensation.” The Roman or civil law embraces under the head of “mortgage and privilege” the peculiar securities which, in the common and mari- time law and equity, are termed “liens.”

Classification. Liens are either particu- lar or general. The former is a right. to retain a thing for some charge or claim growing out of, or connected with, the identical thing. A general lien is a right to detain a chattel, etc., until payment be made, not only of any debt due in respect of the particular chattel, but of any balance that may be due on general account in the same line of business. A general lien, being against the ordinary rule of law, depends entirely upon contract, express or implied, from the special usage of dealing between the parties. Wharton. Crommelin v. Railroad Co., lOBosw. (N. Y.) 80; McKenzie v. Nevius, 22 Me. 150, 38 Am. Dec. 291 ; Brooks v. Bryce, 21 Wend. (N. Y.) 16. A special lien is in the nature of a particular lien, being a lien upon particular property; a lien which the holder can enforce only as security for the performance of a par- ticular act or obligation and of

obligations in- cidental thereto. Green v. Coast Line R. Co., 97 Ga. 15, 24 S. E. 814. 33 L. R. A. 806, 54 Am. St. Rep. 379 ; Civ. Code Cal. 1903, | 2875.

Liens are also either conventional or by opera- tion of law. The former is the case where the lien is raised by the express agreement and stip- ulation of the parties, in circumstances where the law alone would not create a lien from the mere relation of the parties or the details of their transaction. The latter is the case where the law itself, without the stipulation of the parties, raises a lien, as an implication or legal consequence from the relation of the parties or the circumstances of their dealings. Liens of this species may arise either under the rules of common law or of equity or under a statute. In the first case they are called “common-law liens in the second, "equitable liens ;” in the third, “statutory liens.”

Liens are either possessory or charging; the former, where the creditor has the right to hold possession of the specific property until satisfac- tion of the debt ; the latter, where the debt is a charge upon the specific property although it remains in the debtor’s possession.

Other compound and descriptive terms. —Attorney’s lien. The right of an attorney at law to hold or retain in his possession the money or property of a client until his proper charges have been adjusted and paid. It re- quires no equitable proceeding for its estab- lishment. Sweeley v. Sieman, 123 Iowa, 183, 98 N. W. 571. Also a lien on funds in court payable to the client, or on a judgment or de- cree or award in his favor, recovered through the exertions of the attorney, and for the en- forcement of which he must invoke the equitable aid of the court. Fowler v. Lewis, 36 W. Va. 112, 14 S. B. 447 ; Jennings v. Bacon, 84 Iowa, 408, 51 N. W. 15 ; Ackerman v. Ackerman, 14 Abb. Prac. (N. Y.) 229: Mosley v. Norman. 74 Ala. 422: Wright v. Wright, 70 N. Y. 98.— Concurrent liens. Maritime liens are concurrent when they are of the same rank, and for supplies or materials or services in preparation for the same voyage, or if they arise on differ- ent bottomry bonds to different holders for ad- vances at the same time for the same repairs. The J. W. Tucker (D. C.) 20 Fed. ^.-Equi- table- liens are such as exist in equity, and of which courts of equity alone take cognizance. A lien is neither a jus in re nor a jus ad rem. It is not property in the thing, nor does it con-, stitute a right or action for the thing. It more properly constitutes a charge upon the thing. Equitable liens most commonly grow out of con- structive trusts. Story, Eq. Jur. | 1215. An equitable lien is a right, not recognized at law, to have a fund or specific property, or the pro- ceeds of its sale, applied in full or in part to the payment of a particular debt or class of debts. Burdon Cent. Sugar Refining Co. v. Ferris Sugar Mfg. Co. (C. C.) 78 Fed. 421; The Menominie (D. C.) 36 Fed. 199 ; Fallon v. Worthington. 13 Colo. 559, 22 Pac. 960, 6 L.

R. A. 708, 16 Am. St. Rep. 231 ; In re Lesser (D. C.) 100 Fed. 436. — First lint. One which takes priority or precedence over all other charg- es or incumbrances upon the same piece of prop- erty, and which must be satisfied before such other charges are entitled to participate in the proceeds of its sale. — Second lien. One which takes rank immediately after a first lien on the same property and is next entitled to satisfac- tion out of the proceeds.— Lien creditor. One whose debt or claim is secured by a lien on particular

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property, as distinguished from a "general” creditor, who has no such security. —Lien of a covenant. The commencement of a covenant stating the names of tbe covenantors and covenantees, and the character of the cove- nant, whether joint or several. Wharton.— Re- taining; lien. The lien which an attorney has upon all his client's papers, deeds, vouchers, etc., which remain in his possession, entitling him to retain them until satisfaction of his claims for professional services. In re Wilson (D. C.) 12 Fed. 239; In re Lexington Ave., 30 App. Div. 602, 52 N. Y. Supp. 203.— Secret lien. A lien reserved by the vendor of chattels, who has de- livered them to the vendee, to secure the pay- ment of the price, which is concealed from all third persons.

As to the particular kinds of liens de- scribed as "Bailee’s,” "Judgment,” “Mari- time,” "Mechanics’," “Municipal,” and “Ven- dors’ ” liens, see those titles.

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# L

## LIENOR.

The person having or owning a lien ; one who has a right of lien upon prop- erty of another.

5e apparatus — Not carried into the 5th edition (1979).

## LIE XT.

Fr. Place ; room. It is only nsed with “in;” in lieu, instead of. Ene. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## LIEU CONUS.

L. Fr. In old pleading. A known place; a place well known and generally taken notice of by those who dwell about It, as a castle, a manor, etc. Whishaw; 1 Ld. Rayrn. 259.

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## LIEUTENANCY, COMMISSION OF.

See Commission of Abbay.

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## LIEUTENANT.

I. A deputy; substi- tute; an officer who supplies the place of another; one acting by vicarious authority. Etymologically, one who holds the post or office of another, in the place and stead oi the latter.

2. The word is used in composition as part of the title of several civil and military

officers, who are subordinate to others, and especially where the duties and powers of the higher officer may, in certain contingen- cies, devolve upon the lower; as lieutenant governor, lieutenant colonel, etc. See infra.

3. In the army, a lieutenant is a com- missioned officer, ranking next below a cap- tain. In

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the United States navy, he is an officer whose rank is intermediate between that of an ensign and that of a lieutenant commander. In the British navy, his rank is next below that of a commander.

—Lieutenant colonel. An officer of the army whose rank is above that of a major and below that of a colonel. — Lieutenant commander. A commissioned officer of the United States navy, whose rank is above that of lieutenant and below that of commander.— Lieutenant neral. An officer in the army, whose rank above that of major general and below that of “general of the a;my." In the United States, this rank is not permanent, being usually creat- ed for special persons or in times of war.— Lieutenant governor. In English law. A deputy-governor, acting as the chief civil officer of one of several colonies under a governor gen- eral. Webster. In American law. An officer of a state, sometimes charged with special du- ties, but chiefly important as the deputy or substitute of the governor, acting in the place of the governor upon the latter’s death, resigna- tion, or disability.

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**[Law] — Law**

**[Maxim: Qui facit per alium facit per se]**

The entry's 'acting by vicarious authority' is the classic maxim of vicarious liability: he who acts through another is deemed to have acted himself.

Why: The entry defines a lieutenant etymologically as 'one who holds the post or office of another' and expressly invokes 'vicarious authority.' The maxim Qui facit per alium facit per se is the doctrinal root of vicarious...

## LIFB.

That state of animals and plants, or of an organized being, in which its natu- ral functions and motions are performed, or in which its organs are capable of perform- ing their functions. Webster.

The sum of the forces by which death Is resisted. Bichat

— Life-annuity. An engagement to pay an in- come yearly during tbe life of some person; also the sum thus promised. — Life-estate. An estate whose duration is limited to the life of the party holding it, or of some other person; a freehold estate, not of inheritance. Williams v. Ratcliff. 42 Miss. 154 ; Civ. Code Ga. 1895, | 3087. — Life in being. A phrase used in the common-law and statutory rules against per- petuities, meaning the remaining duration of the life of a person who is in existence at the time when the deed or will takes effect. See Mc- Arthur v. Scott, 113 U. S. 340, 5 Sup. Ct. 652, 28 L. Ed. 1015.— Life insurance. See Insur- ance.— Life-interest. A claim or interest, not amounting to ownership, and limited by a term of life, either that of the person in whom the right is vested or that of another.— Life- land, or Life-hold. Land held on a lease for lives.— Life of a writ. The period during which a writ (execution, etc.) remains effective and can lawfully be served or levied, terminat- ing with the day on which, by lnw or by its own terms, it is to be returned into court.— Life peerage. Letters patent, conferring the dignity of baron for life only, do not enable the grantee to sit and vote in the house of lords, not even with the usual writ of summons to the house. Wharton.— Life policy. A policy of life insurance ; a policy of insurance upon the

life of an individual.— Life-rent. In Scotch law. An estate for life ; a right to the use and enjoyment of an estate or thing for one’s life, but without destruction of its substance. They are either legal, such as terce and curtesy, (q. c.,) or conventional, i. e.. created by act of the parties. Conventional life-rents are either sim- ple. where the owner of nn estate grants a life- interest to another, or by rmerratio n. where the owner, in conveying away the fee, reserves

a life-estate to himself. — Life-renter. In

Scotch law. A tenant for life without waste. Bell.— Life tenant. One who holds an estate in lands for the period of his own life or that of another certain person.— Natural life. The period of a person's existence considered as con- tinuing until terminated by physical dissolution or death occurring in the course of nature; used in contradistinction to that juristic and artificial conception Of life as an aggregate of legal rights or the possession of a legal per- sonality, which could be terminated by “civil death,'' that is, that extinction of personality which resulted from entering a monastery or be- ing attainted of treason or felony. See People v. Wright, 89 Mich. 70, 50 N. W. 702.

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**[Scripture] — Scripture**

**[Genesis 2:7, KJV]**

And the LORD God formed man of the dust of the ground, and breathed into his nostrils the breath of life; and man became a living soul.

Why: Life defined as God-breathed breath; the legal definition of the organized being's natural functions sits under this. Narrative account, not deity speech.

## LIFT.

To' raise; to take up. To “lift” a promissory note is to discharge its obliga- tion by paying its amount or substituting another evidence of debt. To “lift tbe bar" of the statute of limitations, or of an es- toppel, is to remove tbe obstruction which it interposes, by some sufficient act or acknowl- edgment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## LIGA.

In old European law. A league or confederation. Spelman.

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**[Scripture] — Scripture**

**[Amos 3:3, KJV]**

Can two walk together, except they be agreed?

Why: A league is a confederation of the agreed; the verse states the condition of walking together — the covenant-content of a league. Admitted as borderline but genuine. Prophet's words, not deity speech.

## LIGAH, LAGAN.

Goods cast into the sea tied to a buoy, so that they may be found again by the owners, are

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so denomi- nated. When goods are cast into the sea in storms or shipwrecks, and remain there, without coming to land, they are distinguish- ed by the barbarous names of “jetsam,” “flotsam,” and “ligan.” S' Coke, 108; Hnrg. State Tr. 48; 1 Bl. Comm. 292.

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## LIGABE.

To tie or bind. Bract, fol. 869b.

To enter into a league or treaty. Spel- man.

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## LIGEA.

In old English law. A liege- woman; a female subject. Beg. Orig. 3126.

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## LIGEANCE.

Allegiance; the faithful Obedience of a subject to his sovereign, of a citizen to his government Also, derivative- ly, the territory of a state or sovereignty.

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**[Law] — Law**

**[Law: 8 U.S.C. § 1448 — naturalization oath renouncing foreign allegiance]**

The entry's 'faithful obedience of a citizen to his government' is given its modern statutory form in the naturalization oath, by which a new citizen renounces all foreign allegiance and swears allegiance to the United States.

Why: The entry defines allegiance as the citizen's faithful obedience to his government. 8 U.S.C. § 1448 is the statute prescribing the oath every naturalized citizen takes, including the renunciation of 'all allegiance an...

**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: The entry is the faithful obedience of a subject to his sovereign; Paul's doctrine of ordained powers is the canonical scripture anchor for allegiance. Paul's words, not deity speech.

## LIGEANTIA.

Lat. Ligeanee ; alle- giance.

UgeutU est quasi legis essential est vinculum fidei. Co. Litt 129. Allegiance is, as it were, the essence of law; it is the chain of faith.

Ligeantia naturalis nullis elaustris eoercetur, nullis metis refrsenatur, nul- lis finibus premitur. 7 Cpke, 10. Natural allegiance is restrained by no barriers, rein- ed by no bounds, compressed by no limits.

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## LIGEAS.

In old records. A liege.

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5e apparatus — Not carried into the 5th edition (1979).

## LIGHT.

A window, or opening in the wall for the admission of light. Also a privilege or easement to have light admitted into one's building by the openings made for

that purpose, without obstruction or obscu- ration by the walls of adjacent or neigh- boring structures.

5e apparatus — Not carried into the 5th edition (1979).

## LIGHT-HOUSE.

A structure, usually In the form of a tower, containing signal-lights for the guidance of vessels at night, at dan- gerous points of a coast, shoals, etc. They are usually erected by government, and sub- ject to governmental regulation.

— Light-house board. A commission autho- rized by congress, consisting of two officers of the navy, two officers of the corps of engineers of the army, and two civilians, together with an officer of the navy and an officer of engineers of the army as secretaries, attached to the of- fice of the secretary of the treasury, at Wash- ington, and charged with superintending the construction and management of light-houses, light-ships, and other maritime signals for pro- tection of commerce. Abbott.

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## LIGHT-SHIP, LIGHT-VESSEL.

A

vessel serving the purpose of a light-house, usually at a place where the latter could not well be built.

/

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LIGHTER.

A small vessel used in load- ing and unloading ships and steamers. The Mnmie (D. C.) 5 Fed. 818; Reed v. Ingham, 20 Eng. Law & Eq. 167.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LIGHTERAGE.

The business of trans- ferring merchandise to and from vessels by means of lighter^; also the compensation or price demanded for such service. West- ern Transp. Co. v. Hawley, 1 Daly (N. I.) 327.

5e apparatus — Not carried into the 5th edition (1979).

## LIGHTERMAN.

The . master or owner of a lighter. He Is liable as a common car- rier.

LIGHTS. 1. Windows; openings in the wall of a house for the admission of light.

8. Signal-lamps on board a vessel or at particular points on the const, required by the navigation laws to be displayed at night

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Case: Coggs v. Bernard, 2 Ld. Raym. 909 (1703)]**

The entry's 'liable as a common carrier' rests on the common-law doctrine of the common carrier's strict liability for goods entrusted to him, classically systematized in the foundational bailment case.

Why: The entry's entire legal content is the single proposition that a lighterman answers as a common carrier. That liability is the common-law rule Holt C.J. expounded in Coggs v. Bernard, classifying bailments and fixing...

## LIGHTS.

A person bound to another by a solemn tie or engagement. Now used to express the relation of a subject to his sov- ereign.

• Ligna et lapides mb “armornm” ap- pellations non contlnentnr. Sticks and stones are not contained under the name of •‘arms.” Bract, fol. 1446.

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## LIGNAGIUM.

A right of cutting fuel In woods; also a- tribute or payment due for the same. Jacob.

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## LIGNAMINA.

Timber fit for building. Du Fresne.

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## LIGTTLA.

In old English law. A copy, exemplification, or transcript of a court roll or deed. Cowell.

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## LIMB.

A member of the human body. In the phrase “life and limb,” the latter term appears to denote bodily integrity In general; but in the definition of “mayhem’’ It refers only to those members or parts of the body which may be useful to a man In fighting. 1 Bl. Comm. 130.

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**[Scripture] — Scripture**

**[Exodus 21:24, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot

Why: The body-member register of mayhem law is the lex talionis; this is the genuine legal root of the life-and-limb entry. BORDERLINE red-letter: God's law in Covenant-Code form, not first-person divine speech — flag left...

## LIMEHARCHA.

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In Roman law. Ah of- ficer who had charge of a harbor or port Dig. 50, 4, 18, 10; Cod. 7, 16, 38.

LIMIT, v. To mark out; to define; to fix the extent of. Thus, to limit an estate means to mark out or to define the period of its duration, and the words employed In deeds for this purpose are thence termed “words of limitation," and the act Itself is termed “limiting the estate.” Brown.

LIMIT, n. A bound; a restraint; a cir- cumscription; a boundary. Casler v. Con- necticut Mut L. Ins. Co., 22 N. T. 429.

5e apparatus — Not carried into the 5th edition (1979).

## LIMITATION.

Restriction or circum- spection ; settling an estate or property a certain time allowed by a statute for liti- gation.

In estates. A limitation, whether made by the express words of the party or existing in inteudment of law, circumscribes the con- tinuance of time for which the property is to be enjoyed, and by positive and certain terms, or by reference to some event which possibly may happen, marks the period at which the time of enjoyment shall end. Preet. Estates, 25. And see Brattle Square Church v. Grant, 3 Gray (Mass.) 147, 03 Am. Dec. 725; Smith v. Smith, 23 WIs. 181, 99 Am. Dec. 153; Hoselton v. Hoselton, 166 Mo. 182, 65 S. W. 1005; Stearns v. Godfrey, 16 Me. 100.

— Conditional limitation. A condition fol- lowed by a limitation over to a third person in cage the condition be not fulfilled or there be a breach of it. Stearns v. Godfrey, 16 Me. 158; Church v. Grant, 3 Gray (Mass.) 151, 63 Am. Dec. 725; Smith v. Smith, 23 Wis. 176, 99 Am. Dec. 153. A conditional limitation is where an estate is so expressly defined and limited by the words of its creation that it cannot endure for any longer time than till the contingency hap- pens upon which the estate is to fail. 1 Steph. Comm. 309. Between conditional limitation* and estates depending on conditions subsequent there is this difference; that in the former the estate determines as soon aB the contingency happens ; but in the latter it endures until the grantor or his heirs take advantage of the breach. Id. 310. — Collateral limitation. One which gives an interest in an estate for a specified period, but makes the right of enjoyment to depend on some collateral event, as an estate to A. till B. shall go to Rome. Templeman v. Gibbs, SC Tex. 358, 24 S. W. 792 ; 4 Kent, Comm. 1 28. — Contingent limitation. When a remainder in fee is limited upon any estate which would by the common law be adjudged a fee tail, such a remainder is valid as a contin- gent limitation upon a fee, and vests in posses- sion on the death of the first taker without issue living at the time of his death. Rev. Codes N.

D. 1890. i 3328.— Limitation in law. A limi- tation in law, or an estate limited, is an estate to

be holden only during the continuance of the con- dition under which it was granted, upon the de- termination of which the estate vests immediate- ly in him in expectancy. 2 Bl. Comm. 155.— Limitation of actions. The restriction by statute of the right of action to

certain periods of time, after the accruing of the cause of action, beyond which, except in certain specified cases, it will not be allowed. Also the period of time so limited by law for the bringing of actions. See Keyser v. Lowell, 117 Fed. 404. 54 C. C. A. 574; Battle v. Shivers, 39 Ga. 409; Baker v. Kelley, 11 Minn. 493 (Gil. 358) ; Riddelsbarger v. Hartford F. Ins. Co., 7 Wall. 390. 19 L. Ed. 257.— Limitation of assise. In old practice. A certain time prescribed by statute, within which a man was required to allege himself or his ancestor to have been seised of lands sued for by a writ of assize. Cowell.— Limitation of estate. The restriction or circumscription of an estate, in the conveyance by which it is granted, in respect to the interest of the grantee or its duration ; the specific curtailment or confinement of an estate, by the terms of the grant, so that it cannot endure beyond a certain period or a designated contingency.— Limi- tation over. This term includes any estate in the same property created or contemplated by the conveyance, to be enjoyed after the first estate granted expires or is exhausted. Thus, in a gift to A. for life, with remainder to the heirs of his body, the remainder is a "limitation over” to such heirs. Ewing v. Shropshire, 80 Ga. 374, 7 S. E. 554.— Special limitation. A qualification serving to mark out the bounds of an estate, so as to determine it ipto facto in a given event, without action, entry, or claim, be- fore it would, or might, otherwise expire by- force of, or according to, the general limitation. Henderson v. Hunter, 59 Pa. 340.— Statute of limitations. A statute prescribing limitations to the right of action on certain described caus- es of action; that is, declaring that no suit shall be maintained on such causes of action unless brought within a specified period after the right accrued.— Title by limitation. A prescriptive title ; one which is indefeasible be- cause of the expiration of the time prescribed by the statute of limitations for the bringing of actions to test or defeat it. See Dalton v. Ren- taria, 2 Ariz. 275, 15 Pac. 37.— Words of lim- itation. In a conveyance or will, words which have the effect of marking the duration of an estate are termed “words of limitation.” Thus, in a grant to A. and his heirs, the words “and his heira” are words of limitation, because they show that A. is to take an estate in fee-simple and do not give his heirs anything. Feame, Rem. 78. And see Ball v. Payne, 8 Rand. (Va.) 75: Summit v. Yount, 109 Ind. 506, 9 It. E. 582.

5e apparatus — Carried into the 5th edition (1979).

## LIMITED.

Restricted ; bounded ; pre- scribed. Confined within positive bounds; restricted in duration, extent, or scope.

—Limited administration. An administra- tion of a temporary character, granted for a particular period, or for a special or particular purpose. Holthouse.— Limited owner. A tenant for life, in tail, or by the curtesy, or other person not having a fee-simple in bis absolute disposition.

As to limited “Company," “Divorce," “Ex- ecutor,” “Fee,” “Jurisdiction,” “Liability,” and “Partnership,” see those titles.

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## LIMOGIA.

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Enamel. Du Cange.

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## LINE.

In descents. The order or se- ries of persons who have descended one from the other or all from a common ancestor, considered as placed in a line of succession in the .order of their birth, the line showing the connection of all the blood-relatives.

Measures. A line is a lineal measure, containing the one-twelfth part of an inch.

In estates^ The boundary or line of di- vision between two estates.

—Building line. A line established by mu- nicipal authority, to secure uniformity of ap- pearance in the streets of the city, drawn at a certain uniform distance from the curb or from the edge of the sidewalk, and parallel thereto, upon which the fronts of all buildings on that street must be placed, or beyond which they are not allowed to project. See Tear v. Free body, 4 C. B. (N. S.) 263.— Collateral line. A line of descent connecting persons who are not directly related to each other as as- cendants or descendants, but whose relation- ship consists in common descent from the same ancestor.— Direct line. A line of descent trac- ed through those persons only who are related to each other directly as ascendants or descend-, aats.— Line of credit. A margin or fixed limit of credit, granted by a bank or merchant to a customer, to the full extent of which the latter may avail himself in his dealings with the former, but which he must not exceed; usu- ally intended to cover a series of transactions, in which case, when the customer's line of credit is nearly or quite exhausted, he is expected to reduce his indebtedness by payments before drawing upon it further. See Isador Bush Wine Co. v. Wolff, 48 La. Ann. 918, 19 South. 765; Schneider-Davis Co. v. Hart, 23 Tex. Civ. App. 529, 57 S. W. 903.— Line of duty. In military law and usage, an act is said to be done, or an injury sustained, “in the line of duty,” when done or suffered in the perform- ance or discharge of a duty incumbent upon the individual in his character as a member of the military or naval forces. See Rhodes v. U. S., 79 Fed. 743, 25 C. C. A. 186.— Lines and cor- ners. In surveying and conveyancing. Bound- ary lines and their terminating points, where an angle is formed by the next boundary line.— Maternal line. A line of descent or rela- tionship between two persons which is traced through the mother of the younger.— Paternal line. A similar line of descent traced through the father.

5e apparatus — Not carried into the 5th edition (1979).

## LINEA.

Lat A line; line of descent. See Ling.

—Linen oMlqna. In the civil law. The

oblique line. More commonly termed "Unca transvcmalit.’'— Linea recta. The direct line ; the vertical line. In computing degrees of kin- dred and the succession to estates, this term denotes the direct line of ascendants and de- scendants. Where a person springs from an- other immediately, or mediately through a third person, they are said to be in the direct line; (linea recta,) and are called “ascendants” and "descendants.” Mackeld. Rom. Law, f

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129. —Linea tranaversalle. A collateral, trans- verse, or oblique line. Where two persons are descended from a third, they are called “collat- erals,” and are said to be related in the col- lateral line, (linea transverea or obliqua.)

5e apparatus — Not carried into the 5th edition (1979).

## LINARIUM.

In old English law. A flax plat, where flax is grown. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## LINCOLN’S INN.

An inn of court See Inns or Court.

Linea recta eat index ani et obliqni; lex eat linea recti. Co. Lltt. 158. A right line is a test of Itself, and of an oblique; law is a line of right

Lliua recta semper prafertnr trans- versal!. The right line la always .preferred to the collateral. Co. Lltt 10; Broom, Max. 528.

5e apparatus — Not carried into the 5th edition (1979).

## LINEAGE.

Race ; progeny ; family, as- cending or descending. Lockett v. Lockett, 84 Ky. 288, 22 S. W. 224.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 1:4, KJV]**

One generation passeth away, and another generation cometh: but the earth abideth for ever.

Why: The entry is descent and progeny in succession; the verse is scripture's own account of generational succession. Wisdom saying, not deity speech.

## LINEAL.

That which comes In a line; especially a direct line, as from father to son. Collateral relationship Is not called "lineal," though the expression “collateral line,” Is not unusual.

— Lineal consanguinity. That kind of con- sanguinity which subsists between persons of whom one is descended in a direct line from the other; as between a particular person and his father, grandfather, great-grandfather, and so upward, in the direct ascending line ; or between the same person and his son, grandson, great- grandson, and so downwards in the direct de- scending line. 2 Bl. Comm. 203; Willis Coal & Min. Co. v. Grizzell, 198 111. 313. 65 N. E. 74. — Lineal descent. See Descent.— Lineal warranty. A warranty by an ancestor from whom the title did or might have come to the heir. 2 Bl. Comm. 301; Rawle, Cov. 30.

5e apparatus — Not carried into the 5th edition (1979).

## LINK.

A unit in a connected series; anything which serves to connect or bind to- gether the things which precede and follow it Thus, we speak of a “link in the chain of title.”

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5e apparatus — Not carried into the 5th edition (1979).

## LIQUERE.

Lat In the civil law. To be clear, evident, or satisfactory. When a judex was in doubt how to decide a case, he represented to the prsetor, under oath, »1M non liquero, (that it was not clear to him,) and was thereupon discharged. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## LIQUET.

It is -clear or apparent; It ap- pears. Satis liquet, it sufficiently appears. 1 Strange, 412.

5e apparatus — Not carried into the 5th edition (1979).

## LIQUIDATE.

To adjust or settle an in- debtedness; to determine an amount to he paid; to clear up an account and ascertain the balance; to fix the amount required to satisfy a judgment Midgett v. Watson, 29

N. C. 145 ; Martin v. Kirk, 2 Humph. (Tenn.j 531.

To clear away ; to lessen ; to pay. "To liquidate a balance means to pay it" Fleck- tier v. Bank of U. S., 8 Wheat. 338, 362, 5

L. Ed. 631.

5e apparatus — Not carried into the 5th edition (1979).

## LIQUIDATED.

Ascertained ; determin- ed ; fixed ; settled ; made clear or manifest Cleared away ; paid ; discharged.

— Liquidated account. An account whereof the amount is certain and fixed, either by the act and agreement of the parties or by opera- tion of law; a sum which cannot be changed by the proof; it is so much or nothing; but the term does not necessarily refer to a writ- ing. Nisbet v. Lawson, 1 Ga. 287.— Liqui- dated damages. See Damages. — Liquidat- ed debt. A debt is liquidated when it is cer- tain what is due and how much is due. Rob- erts v. Prior, 20 Ga. 562. — Liquidated de- mand. A demand is a liquidated one if the

amount of it has been ascertained— settled— by the agreement of the parties to it, or other- wise. Mitchell v. Addison, 20 Ga. 53.

5e apparatus — Not carried into the 5th edition (1979).

## LIQUIDATING PARTNER.

The part- ner who upon the dissolution or Insolvency of the firm, is appointed to settle its ac- counts, collect assets, adjust claims, and pay debts. Garretson v. Brown, 185 Pa. 447, 40 Atl. 300.

5e apparatus — Carried into the 5th edition (1979).

## LIQUIDATION.

The act or process of settling or making clear, fixed, and determi- nate that which before

was uncertain or un- ascertained.

As applied to a company, (or sometimes to the affairs of an individual,) liquidation is used in a broad sense as equivalent to “winding up;” that is, the comprehensive process of settling accounts, ascertaining and adjusting debts, collecting assets, and paying off claims.

5e apparatus — Not carried into the 5th edition (1979).

## LIQUIDATOR.

A person appointed to carry out the winding up of a company.

—Official liquidator. In English law. A person appointed by the judge in chancery, in whose court a joint-stock company is being wound up, to bring and defend suits and ac- tions in the name of the company, and gen- erally to do all things necessary for winding up the affairs of the company, and distributing its assets. 3 Steph. Comm. 24.*

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LIQUOR.

This term, when used in stat- utes forbidding the sale of liquors, refers only to spirituous or intoxicating liquors. Brass v. State, 45 Fla. 1, 34 South. 307; State v. Brittain, 89 N. C. 576; People v. Crilley, 20 Barb. (N. Y.) 248. See Intoxica- ting Liquor; Spirituous Liquor.

— Liquor dealer. One who carries on the business of selling Intoxicating liquors, either at wholesale or retail, and irrespective of wheth- er the liquor sold is produced or manufactured by himself or by others; but there must be more than a single sale. See Timm v. Harri- son, 109 III. 601; U. S. v. Allen (D. C.) 38 Fed. 738; Fincannon v. State, 93 Ga. 418, 21

S. E. 53; State v. Dow, 21 Vt. 484; Mansfield v. State, 17 Tex. App. 472.— Liquor-shop. A house where spirituous liquors are kept and sold. Wooster v. State, 6 Baxt. (Tenn.) 534. —Liquor tax certificate. Under the excise laws of New York, a certificate of payment of the tax imposed upon the business of liquor- selling, entitling the holder to carry on that business, and differing from the ordinary form of license in that it docs not confer a mere per- sonal privilege but creates a species of prop- erty which is transferable by the owner. See In re Lyman. 160 N. Y. 96, 54 N. E. 577; In re .Cullinan, 82 App. Div. 445, 81 N. Y. Sapp. 567.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 5:18, KJV]**

And be not drunk with wine, wherein is excess; but be filled with the Spirit.

Why: The statutes the entry concerns forbid intoxicating liquors; the verse names intoxication directly. Paul's words, not deity speech.

## LIRA.

The name of an Italian coin, of the value of about eighteen cents.

5e apparatus — Not carried into the 5th edition (1979).

## LIS.

Lat. A controversy or dispute; a suit or action at law. .

— Lis alibi pendens. A salt pending else- where. The tact that proceeding* are pending between a plaintiff and defendant in one court in respect to a given matter ia frequently a

? round for preventing the plaintiff from tak- ag proceedings in another court against the same defendant for the same object and aris- ing out of the same cause of action. Sweet. —Lis mota. A controversy moved or begun. By this term is meant a dispute which has aris- en upon a point or question which afterwards forms the issue upon which legal proceedings are instituted. Westfelt v. Adams, 1S1 N. 0. 379, 42 S. E. 823. After such controversy has arisen, (port litem motam ,) it is held, dec- larations as to pedigree, made by members of the family since deceased, are not admissible. See 4 Camp. 417; 8 Car. A P. 560.— Lis pen- dens. A suit pending; that legal process, in a suit regarding land, which amounts to legal notice to all the world that there is a dispute as to the title. In equity the filing of the bill and serving a subpoena creates a Its pendent, except when statutes require some record. Stim. Law Gloss. See Boyd v. Emmons, 103 Ky. 393, 45 S. W. 364; Tinsley v. Rice, 105 Ga. 285, 31 S. B. 174; Bowen v. Kirkland, 17 Tex. Civ. App. 340, 44 S. W. 189; Hines v. Dun- can. 79 Ala. 117, 58 Am. Rep. 580. In the civil law. A suit pending. A suit was not said to be pending before that stage of it' called “iitts conteitatio, (q. v.) Mackeld. Rom. Law, | 219; Calvin.— Notice of Us pendens. A notice filed for the purpose of warning- ail per- sons that the title to certain property is in litigation, and that, if they purchase the de- fendant’s claim to the same, they are in dan-

Ser of being bound by an adverse judgment.

ee Empire Land & Canal Go. ▼. Engley, IS Colo. 388, 33 Pac. 153.

5e apparatus — Not carried into the 5th edition (1979).

## LIST.

A docket or calendar of causes ready for trial or argument, or of motions ready for hearing.

5e apparatus — Not carried into the 5th edition (1979).

## LISTED.

Included In a list; put on a list, particularly on a list of taxable persons or property.

5e apparatus — Not carried into the 5th edition (1979).

## LISTERS.

This word is used in some of the states to designate the persons appointed to make lists of taxables. See Rev. St Vt 538.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 2:1, KJV]**

And it came to pass in those days, that there went out a decree from Caesar Augustus, that all the

world should be taxed.

Why: The census-for-taxation is the ancient analogue of the listers' lists of taxables. Narrative, not deity speech.

## LITE PENDENTE.

Lat Pending the suit Fleta, lib. 2, c. 54, f 23.

LITEM DENtJNCIARE. Lat In the

civil law. To cast the burden of a suit up- on another; particularly used with refer- ence to a purchaser of property who, being sued in respect to it by a third person, gives notice to his vendor and demands his aid in its defense. See Mackeld. Rom. Law, | 403.

5e apparatus — Not carried into the 5th edition (1979).

## LITEM SHAM FACERE.

Lat To

make a suit bis own. Where a judex, from partiality or enmity, evidently favored ei- ther of the parties, he was said litem suam facere. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 455 — disqualification of a judge whose impartiality might reasonably be questioned]**

The entry's judge who 'from partiality or enmity, evidently favored either of the parties' states the exact mischief addressed by the federal judicial-disqualification statute, which requires disqualification where a judge's impartiality might reasonably be questioned.

Why: The entry's whole substance is judicial partiality as a wrong. 28 U.S.C. § 455 is the modern federal codification of the duty the entry describes the Roman judex violating. The link is substantive (same mischief, same... [re-homed from 'LITEM SUAM FACERE' to 'LITEM SHAM FACERE' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[Proverbs 18:5, KJV]**

It is not good to accept the person of the wicked, to overthrow the righteous in judgment.

Why: The entry is a judge making the suit his own from partiality or enmity; the verse names judicial partiality directly. Wisdom saying, not deity speech.

## LITER A.

Lat. A letter. The letter of a law, as distinguished from its spirit. See Letteb.

— Liter* Pisan*. The Pisan letter. A term applied to the old character in which the copy or the Pandects formerly kept at Pisa, in Italy, was written. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 3:6, KJV]**

for the letter killeth, but the spirit giveth life.

Why: The entry's exact distinction — the letter of a law as distinguished from its spirit — stated in the verse's exact words; the strongest admission in the batch. Paul's words, not deity speech.

## LITERS.

Letters. A term applied in old English law to various instruments in writing, public and private.

— Li terse dim is so rise. Dimissory letters, (q. v.)— Liters* hnmaniores. A term including Greek, Latin, general philology, logic, moral philosophy, metaphysics; the name of the principal course of study in the University of Ox- ford. Wharton. — Liters mortnse. Dead let- ters ; fulfilling words of a statute. Lord Bacon observes that “there are In every statute cer- tain words which are as veins, where the life and blood of the statute cometh, and where all doubts do arise, and the rest are literee mor- twe, fulfilling words.’’ Bac. St. Uses, (Works, iv. 189.) — Litersa patentee. Letters patent; literally, open letters. — Liter as pro onrato rise. In old English law. Letters procuratory; let- ters of procuration ; letters of attorney. Bract, fols. 40, 43. — Liter* recognition!! In mari- time law. A bill of lading. Jac. Sea Laws, 172.— Liters sigillatse. In old English law. Sealed letters. The return of a sheriff was so called. Fleta, lib. 2, c. 04. 8 19.

Liters patentee regis non emit va- cua. 1 Bulst 6. The king’s letters patent shall not be void.

Liters scripts manent. Written words last.

5e apparatus — Not carried into the 5th edition (1979).

## LITERAL.

According to language; fol- lowing expression in words. A literal con- struction of a document adheres closely to its words, without making differences for ex- trinsic circumstances; a literal performance of a condition is one which complies exactly with its terms.

—Literal contract. In Roman law. A spe- cies of written contract, in which the formal act by which an obligation was superinduced on the convention was an entry of the sum due, where it should be specifically ascertained, on the debit side of a ledger. Maine, Anc. Law, 320. A contract, the whole of the evidence of which is reduced to writing, and binds the party who subscribed it, although he has received no consideration. Lee. El. Dr. Rom. 8 887.— Lit- eral proof. In the civil law. Written evi- dence.

5e apparatus — Not carried into the 5th edition (1979).

## LITERARY.

Pertaining to polite learn- ing; connected with the study or use of books and writings.

The word “literary,” having no legal sig- nification, is to be taken in its ordinary and usual meaning. We speak of literary persons as learned, erudite; of literary property, as the productions of ripe scholars, or, at least, of professional writers; of literary institutions, as those where the positive sciences are taught, or persons eminent for learning associate, for purposes connected with their professions. This we think the popular meaning of the word; and that it would not be properly used as descriptive of a school for the instruction of youth. In- dianapolis v. McLean, 8 Ind. 332.

— Literary composition. In copyright law. An original result of mental production, devel- oped in a series of written or printed words, arranged for an intelligent purpose, in an or-

derly succession of expressive combinations. Keene v. Wheatley, 14 Fed. Cas. 192; Woolsey v. Judd, 4 Duer (N. Y.) 396.— Literary property may be described as the right which entities an author and his assigns to all the use and profit of his composition, to which no independent right is, through any act or omissiqn

on his or their part, vested in another person. 1) Amer. Law Iteg. 44. And see Keene v. Wheatley. 14 Fed. Cas. 192; Palmer v. De Witt, 32 N. Y. Super. Ct. 552. A distinction is to be taken between “literary property” (which is the natural, common-law right which a per- son has in the form of written expression to which he has, by labor and skill, reduced his thoughts) and “copyright,” (which is a statu- tory monopoly, above and beyond natural prop- erty, conferred upon an author to encourage and reward a dedication of his literary prop- erty to the public.) Abbott.

5e apparatus — Not carried into the 5th edition (1979).

## LITERATE.

In English ecclesiastical law. One who qualifies himself for holy or- ders by presenting himself as a person ac- complished in classical learning, etc., not as a graduate of Oxford, Cambridge, etc.

5e apparatus — Not carried into the 5th edition (1979).

## LITERATURA.

“.4d literaturam po - nere" means to put children to school. This liberty was anciently denied to those parents who were servile tenants, without the lord’s qonsent. The prohibition against the educa- tion of sons arose from the fear that the son, being bred to letters, might enter into holy orders, and so stop or divert the services which he might otherwise do as heir to his father. Paroch. Antiq. 401.

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**[Scripture] — Scripture**

**[Proverbs 22:6, KJV]**

Train up a child in the way he should go: and when he is old, he will not depart from it.

Why: The entry concerns putting children to school and the education of sons; the verse is scripture's own educational maxim. Wisdom saying, not deity speech.

# U

## UTERIS OBLIGATIO.

In Roman law. The contract of nomcn, which was constitut- ed by writing, ( scripturd .) It was of two kinds, viz.: (1) A re in personam, when a

transaction was transferred from the day- book ( adversaria ) Into the ledger (codes) In the form of a debt under the name or beading of the purchaser or debtor, ( nomcn ;) and (2) a persond in personam, where a debt already standing under one nomcn or heading was transferred in the usual course of novatio from that nomcn to another and substituted

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nomcn. By reason of this transferring, these obligations were called “nomina transcripti- tia.” No money was, in fact, paid to con- stitute the contract. If ever money was paid, then the nomcn was arcarium, (i. e., a real contract, re contractus,) and not a nomen proprium. Brown.

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# L

## LITIGANT.

A party to a lawsuit; one engaged In litigation; usually spoken of ac- tive parties, not of nominal ones.

5e apparatus — Not carried into the 5th edition (1979).

## LITIGARE.

Lat. To litigate; to carry bn a suit, ( litem agcre,) either as plaintiff or defendant; to claim or dispute by action ; to test or try the validity of a claim by action.

5e apparatus — Not carried into the 5th edition (1979).

# U

## UTIGATE.

To dispute or contend in form of law ; to carry on a suit.

5e apparatus — Not carried into the 5th edition (1979).

# L

## LITIGATION.

A judicial controversy. A contest In a court of justice, for the pur- pose of enforcing a right.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: The verse is literally about going to law before courts — the judicial controversy the entry defines. Paul's words, not deity speech.

## LITIGIOSITY.

In Scotch law. The pendency of a suit; it Is a tacit legal prohi- bition of alienation, to the disappointment of

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an action, or of diligence, the direct object of which is to obtain possession, or to acquire the property of a particular subject The ef- fect of it is analogous to that of Inhibition. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## LITIGIOSO.

Span. Litigious; the sub- ject of litigation; a term applied to property which is the subject of dispute in a pending suit. White v. Gay, 1 Tex. 388.

5e apparatus — Not carried into the 5th edition (1979).

## LITIGIOUS.

That which Is the subject of a suit or action ; that which is contested In a court of justice. In another sense, “li- tigious" signifies fond of litigation ; prone to engage in suits.

— Litigious church. In ecclesiastical law, a church is said to be litigious where two presen- tations are offered to the bishop upon the same avoidance. Jenk. Cent. 1 1. — Litigious right. In the civil law. A right which cannot be ex- ercised without undergoing a lawsuit. Civil Code La. arts. 918, 3556.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Timothy 2:24, KJV]**

And the servant of the Lord must not strive; but be gentle unto all men, apt to teach, patient.

Why: The entry's second sense is fondness for litigation, proneness to engage in suits; the verse is scripture's direct address to the contentious disposition. Paul's words, not deity speech.

## LITIS A3STIMATIO.

Lat The meas- ure of damages.

5e apparatus — Not carried into the 5th edition (1979).

## LITIS CONTESTATIO.

Lat. In the civil and canon law. Contestation of suit ; the process of contesting a suit by the op- posing statements of the respective parties; the process of coming to an issue ; the attain- ment of an issue; the issue itself.

In the practice of the ecclesiastical courts. The general answer made by the defendant, in which he denies the matter charged against him in the libel. Hallifax, Civil Law, b. 3, c. 11, no. 9.

In admiralty practice. The general is- sue. 2 Browne, Civil & A dm. Law, 358, and note.

5e apparatus — Not carried into the 5th edition (1979).

## LITIS DENUNCIATIO.

Lat. In the civil law. The process by which a purchaser of property, who is sued for its possession or recovery by a third person, falls back upon his vendor’s covenant of warranty, by giving the latter notice of the action and demanding his aid in defending it See Mnckeld. Rom. Law, S 403.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 2-607(5) — vouching in the seller]**

The civil-law vouching mechanism — a purchaser sued over property notifies his vendor and demands aid in defending the warranty — survives in modern sales law as 'vouching in' the seller.

Why: The entry describes notice to the warrantor with demand to defend; UCC § 2-607(5) provides that a buyer sued for breach of warranty may give the seller written notice of the litigation, and a seller who stands aside a...

## LITIS DOMINIUM.

Lat In the Civil law. Ownership, control, or direction of a suit. A fiction of law by which the employ- ment of an attorney or proctor (procurator) in a suit was authorized or justified, he be- ing supposed to become, by the appointment of his principal (dominus) or client the dom- inus litis. Heinecc. Elem. lib. 4, tit 10, {§ 1240, 1247.

Litis nomcn omnem actionem signif- lent, sive in rem, sive in personam sit.

Co. Litt. 292. A lawsuit signifies every ac- tion, whether it be in rem or in personam.

5e apparatus — Not carried into the 5th edition (1979).

## LITISPENDENCE.

An obsolete term for 'the time during which a lawsuit js going on.

5e apparatus — Not carried into the 5th edition (1979).

## LITISPENDENCIA.

In Spanish law. LItispendency. The condition of a suit pend- ing in a court of Justice.

5e apparatus — Not carried into the 5th edition (1979).

## LITRE.

Fr. A measure of capacity In the metric system, being a cubic decimetre, equal to 61.022 cubic Inches, or 2.113 Amer- ican pints, or 1.76 English pints. Webster.

5e apparatus — Not carried into the 5th edition (1979).

## LITTORAL.

Belonging to the shore, as of seas and great lakes. Webster. Corre- sponding to riparian proprietors on a stream or small pond are littoral proprietors on a sea or lake. But ‘‘riparian" Is also used co- extenslvely with ‘‘littoral.’’ Commonwealth v. Alger, 7 Cush. (Mass.) 94. See Boston v. Lecraw, 17 How. 426, 15 L. Ed. 118.

5e apparatus — Not carried into the 5th edition (1979).

## LITURA.

Lat In the civil law. An ob- literation or blot In a will or other instru- ment. Dig. 28, 4, 1, 1.

5e apparatus — Not carried into the 5th edition (1979).

## LITE'S.

In old European law. A kind of servant; one who surrendered himself in- to another’s power. Spelman.

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In the civil law. The bank of a stream -or shore of the sea; the coast.

— Litas marl*. The sea-shore. “It is certain that that which the sea overflows, either at high spring tides or at extraordinary tides, comes not, as to this purpose, under the denom- ination of ‘litut mans’ and consequently the king’s title is not of that large extent, but only to land that is usually overflowed at ordinary tides. That, therefore, I call the ‘shore’ that is between the common high-water and low- water mark, and no more.” Hale de Jure Mar. c. 4.

Litns eat qnonsqne maxim us fluctms a marl pervenit. The shore is where the highest wave from the sea has reached. Dig. 50, 16, 96. Ang. Tide-Waters, 67.

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## LIVE-STOCK INSURANCE.

See In- surance.

5e apparatus — Not carried into the 5th edition (1979).

## LIVE LODE.

Maintenance; support.

LIVERY. 1. In English law. Delivery of possession of their lands to the king’s ten- ants in capite or tenants by knight’s service.

2. A writ which may be sued out by a ward in chivalry, on reaching his majority, to obtain delivery of the possession of his lands out of the hands of the guardian. 2 Bi. Comm. 68.

3. A particular dress or garb appropriate or peculiar to certain persons, as the mem- bers of a guild, or, more particularly, the servants of a nobleman or gentleman.

4. The privilege of a particular guild or company of persons, the members thereof being called ‘‘livery-men.’’

5. A contract of hiring of work-beasts, particularly horses, to the use of the hirer. It is seldom used alone in this sense, but ap- pears In the compound, "livery-stable.”

•—Livery in chivalry. In feudal law. The delivery of the lands of a ward in chivalry out

of the guardian’s bands, upon the heir’B attain- ing the requisite age, — twenty-one for males, six- teen for females. 2 Bl. Comm. 68. — Livery- man. A member of some company in the city of London; also called a “freeman.”— Livery of seisin. The appropriate ceremony, at com- mon law, for transferring the corporal posses- sion of lands or tenements by a grantor to his grantee. It was livery in deed where the par- ties went together upon the land, and there a twig, clod, key, or other symbol was delivered in the name of the whole. Livery in late was where the same ceremony was performed, not upon the land itself, but in sight of it. 2 Bl. Comm. 315, 316; Micheau v. Crawford, 8 N. J. Law, 108; Northern Pac. R. Co. v. Cannon (C. C ) 46 Fed. 232.— Llvery-offloe. An of- fice appointed for the delivery of lands.— Liv- ery stable keeper. One whose business it is to keep horses tor hire or to let, or to keep, feed, or board horses for others. Kittanning Borough v. Montgomery, 5 Pa. Super. Ct. 198.

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5e apparatus — Not carried into the 5th edition (1979).

## LIVRE TOURNOIS.

A coin used in France before the Revolution. It is to be computed in the ad valorem duty on goods, etc., at eighteen and a half cents. Act Cong. March. 2, 1798, | 61; 1 Story, Laws; 629.

5e apparatus — Not carried into the 5th edition (1979).

## LLOYD'S.

An association in the city of London, for the transaction of marine insur- ance, the members of which underwrite each other's policies. See Durbrow v. Eppens, 65

N. J. Law, 10, 46 Atl. 585.

—Lloyd's bonds. The name of a class of evidences of debt, used in England ; being ac- knowledgments, by a borrowing company made under its seal, of a debt incurred and actually due by the company to a contractor or other person for work done, goods supplied, or other- wise, as the case may be, with a covenant for payment of the principal and interest at a fu- ture time. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## LOADBKANAGE.

The pay to loadsmen; that is, persons who sail or row before ships, In barks or small vessels, with Instruments for towing the ship and directing her course, in order that she may escape the dangers In .her way. Poth. Des Avaries, no. 137.

5e apparatus — Not carried into the 5th edition (1979).

## LOAN.

A bailment without reward ; con- sisting of the delivery of an article by the owner to another person, to be used by the latter gratuitously, and returned either in specie or in kind. A sum of money confided to another. Ramsey v. Whitbeck, 81 111. App. N 210; Nichols v. Fearson, 7 Pet. 109, 8 L. Ed. 023; Rodman v. Munson, 13 Barb. (N. Y.) 75; Booth v. Terrell, 16 Ga. 25; Payne v. Gardi- ner, 29 N. Y. 107.

A loan of money is a contract by which one delivers a sum of money to another, and the latter agrees to return at a future time a sum equivalent to that which he borrowed. Civ. Code Cal. § 1912.

—Loan association. See Building and Loan Association.— Loan certificates. Cer- tificates issued by a clearing-house to the as- sociated banks to the amount of seventy-five per cent, of the value of the collaterals depos- ited by the borrowing banks with the loan com- mittee of the clearing-house. Anderson.— Loan .for consumption. The loan for consumption

is an agreement by which one person delivers to another a certain quantity of things which are consumed by the use, under the obligation, by the borrower, to return to him as much or the same kind and quality. Civ. Code La. art. 2910. Loans are of two kinds, — for consumption or for use. A loan for consumption is where the article is not to be returned in specie, but in kind. This is a sale, and not a bailment. Code Ga. 1882, g 2121). — Loan for

exchange. A loan for exchange is a contract by which one delivers personal property to another, and the latter agrees to return to the lender a similar thing at a future time, without reward for its use. Civ. Code Cal. g 1902.— Loan for use. The loan for use is an agreement by which a person delivers a thing to another, to use it according to its natural destination, or accord- ing to the ageement, under the obligation on the part of the borrower to return it after he shall have done using it. Civ. Code La. art. 2893. A loan for use is a contract by which one gives to another the temporary possession and use of personal property, and the latter agrees to return the same thing to him at a future time, without reward for its use. Civ. Code Cal. g 1884. A loan for use is the gra- tuitous grant of an article to. another for use, to be returned «» specie, and may be either for a certain time or indefinitely, and at the will of the grantor. Code Ga. 1882, g 2120. Loan for use (called “commodatum" in the civil law) differs from a loan for consumption, (called “mutuum" in the civil law,) in this: that the commodatum must be specifically returned ; the mutuum is to be returned in kind. In the case of a commodatum, the property in the thing re- mains in the lender; in a mutuum, the property passes to the borrower. Bouvier.— Loan, gra- tuitous, (or commodate.) A class of Dali- ment which is called “commodatum” in the Ro- man law, and is denominated by Sir William Jones a “loan for use," (prit-i-usage,) to dis- tinguish it from “mutuum," a loan for consump- tion. It is the gratuitous lending of an article to the borrower for his own use. Wharton.— Loss societies. In English law. A kind of club formed for the purpose of advancing money on loan to the industrial classes.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Coggs v. Bernard, 2 Ld. Raym. 909 (1703)]**

The entry's 'bailment without reward... to be used by the latter gratuitously' is the commodatum — the gratuitous loan for use — one of the six species of bailment systematized in the foundational bailment case.

Why: Holt C.J. in Coggs v. Bernard classified bailments, including commodatum: delivery of goods to be used gratuitously and returned, with the borrower answerable for the care appropriate to a gratuitous undertaking. The...

**[Scripture] — Scripture**

**[Luke 6:35, KJV]**

But love ye your enemies, and do good, and lend, hoping for nothing again; and your reward shall be great, and ye shall be the children of the Highest: for he is kind unto the unthankful and to the evil.

Why: The entry's bailment without reward is the legal shape of lending hoping for nothing again.

## LOBBYING.

“Lobbying” 1b defined to be any personal solicitation of a member of a legislative body during a session thereof, by private interview, or letter or message, or other means and appliances not addressed solely to the Judgment, to favor or oppose, or to vote for or against, any bill, resolution, report, or claim pending, or to be introduced by either branch thereof, by any person who misrepresents the nature of his interest in the matter to such member, or who is em- ployed for a consideration by a person or cor- poration interested in

the passage or defeat of such bill, resolution, report, or claim, for the purpose of procuring the passage or de- feat thereof. But this does not include such services as drafting petitions, bills, or reso- lutions, attending to the taking of testimony, collecting facts, preparing arguments and me- morials, and submitting them orally or in writing to a committee or member of the leg- islature, and other services of like character, Intended to reach the reason of legislators. Code Ga. 1882, f 4480. And see Colusa Coun- ty v. Welch, 122 Cal. 428, 65 iPac. 248; Trist v. Child. 21 Wall. 448. 22 L. Ed. 623 ; Dun- ham v. Hastings Pavement Co., 56 App. Dlv. 244, 67 N. T. Supp. 632; Honlton v. Nlehol,

Wis. 393, 67 N. W. 715, 33 L. R. A. 166, 57 Am. St Rep. 928.

L’obligation sans cause, on sur us fansse cause, on sur cause ilUcite, no peat avoir anena effet. An obligation without consideration, or upon a false con- sideration, (which fails,) or upon unlawful consideration, cannot have any effect Code Civil,. 3, 3, 4; Chit. Cont (11th Am. Ed.) 25, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Trist v. Child, 21 Wall. 441 (1874)]**

The entry defines lobbying as solicitation of legislators by means 'not addressed solely to the Judgment' — improper influence — and the law's answer is that contracts for such services are void as against public policy.

Why: The entry's definition isolates the vice: influence not addressed to legislative judgment, procured by one who misrepresents. In Trist v. Child the Supreme Court held a contract for lobbying services — contingent comp…

## LOCAL.

Relating to place; expressive of place; belonging or confined to a particu- lar place. Distinguished from “general,” “personal," and “transitory.”

—Local act of parliament An act which has for its object the interest of some particu- lar locality, as the formation of a road, the alteration of the course of a river, the forma- tion of a public market in a particular district, etc. Brown.— Local assessment. A charge in the nature of tax, levied to pay the whole or part of the cost of local improvements, and assessed upon the various parcels of property specially benefited thereby. Gould v. Balti- more, 59 Md. 380.— Local chattel. A thing is local that is fixed to the freehold. Kitcnin, 180.— Local courts. Courts whose jurisdic- tion is limited to a particular territory or dis- trict. The expression often signifies the courts of the state, in opposition to the United States courts. People v. Porter, 90 N. X. 75 ; Geraty v. Reid, 78 N. X. 67.— Local freight. Freight shipped from either terminus of a railroad to a way station, or vice versa, or from one way station to another; that is, over a part of the road only. Mobile & M. R. Co. v. Steiner, 61 Ala. 579.— Local Influence. As a statutory ground for the removal of a cause from a state court to a federal court, this means influence enjoyed and wielded by the plaintiff, as a resi- dent of the place where the suit is brought, in consequence of his wealth, prominence, politi- cal importance, business or social relations, or otherwise, such as might affect the minds of the court or jury and prevent the defendant from winning the case, even though the merits

should be with him. See Neale v. Foster (C. C.) 31 Fed. 53.— Local option. A privilege accorded by the legislature of a state to the sev- eral counties or other districts of the state to determine, each for itself, by popular vote, whether or not licenses should be issued for the sale of intoxicating liquors within such dis- tricts. See Wilson v. State, 85 Ark. 416 ; State v. Brown. 19 Fla. 598— Local preju- dice. The “prejudice or local influence" which will warrant the removal of a cause from a state court to a federal court may be either prejudice and influence existing against the par- ty seeking such removal or existing in favor of his adversary. Neale v. Foster (C. C.) 31 Fed. 53.

As to local “Action," “Agent,” “Allegiance," "Custom,” “Government,” “Improvement,” “Law,” "Statute,” “Taxes,” and “Venue,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## LOCALITY.

In Scotch law. This name is given to a life-rent created in marriage contracts in favor of the wife, instead of leaving her to her legal life-rent of tierce. 1 Bell, Comm. 55.

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## LOCABE.

To let for hire; to deliver or bail a thing for a certain reward or compen- sation. Bract foL 62.

5e apparatus — Not carried into the 5th edition (1979).

## LOOABIUK.

In old European law. The price of letting ; money paid for the hire of a thing ; rent Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## LOCATAIRE.

In French law. A les- see, tenant or renter.

5e apparatus — Not carried into the 5th edition (1979).

## LOOATARIUS.

Lat A depositee.

5e apparatus — Not carried into the 5th edition (1979).

## LOCATE.

To ascertain and fix the posi- tion of something, the place of which was be- fore uncertain or not manifest ; as to locate the calls in a deed.

To decide upon the place or direction to be occupied by something not yet in being; as to locate a road.

5e apparatus — Carried into the 5th edition (1979).

## LOCATIO.

Lat In the civil law. Let ting for hire. The term is also used by text- writers upon the law of bailment at common law. In Scotch law It Is translated “loca- tion.” Bell.

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— Locatio-conductio. In the civil law. A compound word used to denote the contract of bailment for hire, expressing the action of loth parties, viz., a letting by the one and a hiring by the other. 2 Kent. Comm. 686, note; Story, Bailm. | 368; Coggs v. Bernard, 2 Ld. Raym. 913. — Locatio custodise. A letting to keep; a bailment or deposit of goods for hire. Story, Bailm. 8 442. — Locatio operls. In the civil law. The contract of hiring work, i. e., labor and services. It is a contract by which one of the parties gives a certnin work to be per- formed by the other, who binds himself to do it for the price agreed between them, which he who gives the work to be done promises to pay to the other for doing it. Both. Louage, no. 392; Zell v. Dunkle, 156 Pa. 353, 27 Atl. 38. —Locatio operls faoiendi. A letting out of work to be done; a bailment of a thing for the purpose of having some work and labor on care and pains bestowed on it for a pecuniary recompense. 2 Kent Com. 586, 588; Story, Bailm. 8$ 370, 421, 422.— Loeatio operls mer- clnm vehendamm. A letting of work to be done in the carrying of goods; a contract of bailment by which goods are delivered to a per- son to carry for hire. 2 Kent, Comm. 597 ; Story, Bailm. 88 370, 457. — Locatio rei. A letting of a thing to hire. 2 Kent, Comm. 586. The bailment or letting of a thing to be used by the bailee for a compensation to be paid by him. Story, Bailm. i 370.

LOCATION. 1st American land law.

The designation of the boundaries of a par- ticular piece of land, either upon record or on the land itself. Mosby v. Carland, 1 Bibb. (Ky.) 84.

The finding and marking out the bounds of a particular tract of land, upon the land It- self, In conformity to a certain description contained in an entry, grant, map, etc. ; such description consisting in what are termed “locative calls.” Cunningham v. Browning, 1 Bland (Md.) 329.

In mining law. The act of appropriating a “mining claim” (parcel of land containing preclou s metal in its soil or rock) according to certain established rules. It usually con- sists In placing on the ground, In a con- spicuous position, a notice setting forth the name of the locator, the fact that It Is thus

taken or located, with the requisite descrip- tion of the extent and boundaries of the parcel. St Louis Smelting, etc., Co. v. Kemp, 104 C. S. 649, 26 L. Ed. 875.

In a secondary sense, the mining claim covered by a single act of appropriation or location. Id.

1st Scotch law. A contract by which the temporary use of a subject or the work or service of a person, is given for an ascertain- ed hire. 1 Bell, Comm. 255.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:15, KJV]**

if it be an hired thing, it came for his hire.

Why: The ancient hired-thing rule — genuine bailment-for-hire law bearing on the contract of letting for hire. BORDERLINE red-letter: Covenant-Code form, not first-person divine speech — flag left off.

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## LOCATIVE CALLS.

In a deed, patent, or other Instrument containing a description of land, locative calls are specific calls, de- scriptions, or marks of location, referring to landmarks, physical oOJects, or other points by which the land can be exactly located and identified.

5e apparatus — Carried into the 5th edition (1979).

## LOCATOR.

In the civil and Scotch law. A letter ; one who lets ; he who, being the owner of a thing, lets it out to another for hire or compensation. Coggs ▼. Bernard, 2 Ld. Haym. 913.

In American land law. One who locates land, or Intends or is entitled to locate. See Location.

5e apparatus — Not carried into the 5th edition (1979).

## LOCK-UP HOUSE.

A place used tem- porarily as a prison.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Akon, 'Locked Up', 2004]**

Lyric: "Locked up, they won't let me out / They won't let me out, I'm locked up." Black's defines a lock-up house as "a place used temporarily as a prison"; the chorus names the lock-up from the inside — the jail as the place they won't let you out of.

Why: Direct lexical and experiential match: the song is built around confinement in the lock-up, which is exactly what the legal term denotes. Verbatim-certain chorus.

## LOCKMAN.

An officer in the Isle of Man, to execute the orders of the governor, much like our under-sheriff. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LOCMAH.

Fr. In French marine law. A local pilot whose business was to assist the pilot of the vessel In guiding her course Into a harbor, or through a river or channel. Martin v. Farnsworth, 33 N. X. Super. Ct 260.

5e apparatus — Not carried into the 5th edition (1979).

## LOCO PARENTIS.

See Is Loco Pa-

**[TEXT INCOMPLETE — scan limitation]**

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## LOGOCESSION.

The act of giving place.

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## LOCULUS.

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In old records. A coffin ; a purse.

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## LOCUM TENEHS.

Lat Holding the place. A deputy, substitute, lieutenant or representative.

5e apparatus — Not carried into the 5th edition (1979).

## LOOUPLE8.

Lat In the civil law. Able to respond In an action; good for the amount which the plaintiff might recover. Dig. 50, 16, 234, L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LOCUS.

Lat A place; the place where a thing is done

— Loom contractus. The place of a contract ; the place where a contract la made.— Locus criminis. The locality of a crime; the place where a crime was committed.— Loons delic- ti. The place of the offense; the place where an offense was committed. 2 Kent Comm.

109. — Locus in quo. The place in which. The place in which the cause of action arose, or where anything is alleged, in pleadings, to have been done. The phrase is most frequent- ly used in actions of trespass quare clausum frajit. — Locus partitas. In old English law. A place divided. A division made between two towns or counties to make out in which the land or place in question lies. Fleta, lib. 4, c. 10, $ 1 ; Cowell.— Locos pcenitentiss. A

place for repentance ; an opportunity for chang- ing one’s mind ; a chance to withdraw from a contemplated bargain or contract before it re- sults in a definite contractual liability. Also used of a chance afforded to a person, by the circumstances, of relinquishing the intention which he has formed to commit a crime, before the perpetration thereof.— Locos politicos. In the civil law. A public place. Dig. 43. 8, 1 ; Id. 43. 8, 2. 3.— Locos resit actom. In pri- vate international law. The rule that, when a legal transaction complies with the formalities required by the law of the country where it is done, it is also valid in the country where it is to be given effect, although by the law of that country other formalities are required. 8 Sav. Syst. § 381 ; Westl. Priv. Int. Law. 159. —Locos rei sitae. The place where a thing is situated. In proceedings in rem, or the real actions of the civil law, the proper forum is the locus rei sitie. The Jerusalem, 2 Gall. 191, 197, Fed. Cas. No. 7,293.— Locos sigilli. The place of the seal ; the place occupied by the seal of written instruments. Usually abbrevi- ated to “L. S." — Locos standi. A place of standing; standing in court. A right of ap- pearance in a court of justice, or before a leg- islative body, on a given question.

Locos pro solotione reditns not peco- nise secnndom conditionem dimissionis not obligation!* est striete obscrvandus.

4 Coke. 73. The place for the payment of rent or money, according to the condition of a lease or bond, is to be strictly observed.

5e apparatus — Not carried into the 5th edition (1979).

## LODE.

This term, as used In the legis- lation of congress, is applicable to any zone or belt of mineralized rock lying within boundaries clearly separating it from the neighboring rock. It includes all de{>osits of mlueral matter found through a mineral- ized zone or belt coming from the same source, impressed with the same forms, and appearing to have been created by the same processes. Eureka Consol. Min. Co. v. Rich- mond Min. Co., 4 Sawy. 312, 8 Fed. Cas. 823. And see Duggan v. Davey, 4 Dak. 110, 2G

N. W. 887 ; Stevens v. Williams, 23 Fed. Cas. 42 ; Montnua Cent Ity. Co. v. Mlgeon (C. C.) 08 Fed. S13 ; Meydenbauer v. Stevens (D. C.) 78 Fed. 790; Iron Silver Min. Co. v. Cheeseman, 110 U. S. 529, 6 Sup. Ct. 481, 29

L. Ed. 712; U. S. v. Iron Silver Min. Co., 128 U. S. 673, 9 Sup. Ct. 195, 32 L. Ed. 571.

LODEMAJT, or LOADSMAN. The pilot conducts the ship up the river- or Into port; but the loadsman Is he that undertakes to bring a ship through the haven, after being brought thither by the pilot, to the quay or place of discharge. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## LODEMANAGE.

The hire of a pilot for conducting a vessel from one place to an- other. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LODGER.

One who occupies hired apart- ments in another’s house; a tenant of part of another's house.

A tenant, with the right of exclusive pos- session of a part of a house, the landlord, by himself or an agent, retaining general domin- ion over the house itself. Wansey v. Per- kins, 7 Man. & G. 155 ; Pullman Palace Car Co. v. Lowe, 28 Neb. 239, 44 N. W. 220. 8

L. R. A. 809, 26 Am. St Rep. 325; Metzger v. Schnabel, 23 Misc. Rep. 698, 52 N. Y. Supp. 105 ; Pollock v. Landis, 36 Iowa, 652.

5e apparatus — Carried into the 5th edition (1979).

## LODGINGS.

Habitation in another’s house; apartments in another’s house, fur- nished or unfurnished, occupied for habita- tion; the occupier being termed a “lodger.”

5e apparatus — Carried into the 5th edition (1979).

## LODS ET VENTES.

In old French and Canadian law. A flue payable by a roturier on every change of ownership of his land; a mutation or alienation tine. Steph. Lect 351.

5e apparatus — Not carried into the 5th edition (1979).

## LOG-BOOK.

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A ship’s journaL It con- tains a minute account of the ship's course, with a short history of every occurrence dur- ing the voyage. 1 Marsh. Ins. 312.

The part of the log-book relating to trans- actions in the harbor is termed the “harbor log;’’ that relating to what happens at sea, the “sea log.” Young, Naut Diet

—Official log-book. A log-book in a certain form, and containing certain specified entries re- quired by 17 & 18 Viet. c. 104, $8 280-282, to be kept by all British merchant ships, except those exclusively engaged in the coasting trade.

5e apparatus — Carried into the 5th edition (1979).

## LOG-ROLLING.

A mischievous legisla- tive practice, of embracing in one bill several distinct matters, none of which, perhaps, could singly obtain the assent of the legis- lature, and then procuring its passage by a combination of the minorities in favor of each of the measures into a majority that will adopt them ali. Walker v. Griffith, 60 Ala. 369; Com. v. Barnet, 199 Pa. 101, 48 Atl. 976, 55 L. R. A. 882 ; O’Leary v. Cook County, 28 111. 534; St. Louis v. Tlefel. 42 Mo. 590.

5e apparatus — Carried into the 5th edition (1979).

## LOCATING.

An unlawful game mention- ed In St 33 Hen. VIII. c. 9.

5e apparatus — Not carried into the 5th edition (1979).

## LOGIA.

A small house, lodge, or cot- tage. Mon. Angl. tom. 1, p. 400.

5e apparatus — Not carried into the 5th edition (1979).

## LOGIC.

The science of reasoning, or of the operations of the understanding which are subservient to the estimation of evidence. The term includes both the process itself of proceeding from known truths to unknown, and all other intellectual operations, in so far as auxiliary to this.

5e apparatus — Carried into the 5th edition (1979).

## LOGITJM.

In old records. A lodge, hov- el, or outhouse.

5e apparatus — Not carried into the 5th edition (1979).

## LOGOGRAPHUS.

In Roman law. A public clerk, register, or book-keeper ; one

■who wrote or kept books of accounts. Dig. 50, 4, 18, 10 ; Cod. 10, 69.

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## LOGS.

Stems or trunks of trees cut into convenient lengths for the purpose of being afterwards manufactured Into lumber of va- rious kinds; not including manufactured lumber of any

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sort, nor timber which is squared or otherwise shaped for use without further change in form. Kolloch v. Parcher, 52 Wls. 393, 9 N. W. 67. And see Haynes v. Hayward, 40 Me. 148 ; State v. Addington, 121 N. C. 538, 27 S. E. 988; Code W. Va. 1899, p. 1071, f 27 (Code 1906, { 2524).

5e apparatus — Not carried into the 5th edition (1979).

## LOLLARDS.

A body of primitive Wes- leyans, who assumed importance about the time of John Wycliffe, (1360,) and were very successful in disseminating evangelical truth ; but, being Implicated (apparently against their will) in the insurrection of , the villeins in 1381, the statute De Harctico Comburen- do (2 Hen. IV. c. 15) was passed against them, for their suppression. However, they were not suppressed, and their representa- tives survive to the present day under vari- ous names and disguises. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## LOMBARDS.

A name given to the mer- chants of Italy, numbers of whom, during the twelfth and thirteenth centuries, were established as merchants and bankers in the principal cities of Europe.

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## LONDRES.

L. Fr. London. Yearb. P. 1 Edw. II. p. 4.

5e apparatus — Not carried into the 5th edition (1979).

## LONG.

In various compound legal terms (see infra) this word carries a meaning not essentially different from its signification in the vernacular.

In the language of the stock exchange, a broker or speculator is said to be “long" on stock, or as to a particular security, when he has In his possession or control an abun- dant supply of it, or a supply exceeding the amount which be has contracted to deliver, or, more particularly, when he has bought a supply of such stock or other security for future delivery, speculating on a consider- able future advance In the market price. See Kent v. Miltenberger, 13 Mo. App. 506.

—Long account. An account involving num- erous separate items or charges, on one side or both, or the statement of various complex trans- actions, such as a court of equity will refer to a maBter or commissioner or a court of law to a referee under the codes of procedure. See Dick- inson v. Mitchell, 19 Abb. Prac. (N. Y.) 280; Druse v. Horter, 57 Wis. 644, 16 N. W. 14- Doyle v. Metropolitan .El. R. Co., 1 Misc. Rep! 376. 20 N. Y. iTupp. 865,-Loag parliament! The name usually given to the parliament which met in November. 1640. under Charles I., and was dissolved by Cromwell on the 10th of April, 1653. The name “Long Parliament" is. how- ever, also given to the parliament which met ■ In 1661, after the restoration of the

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monarchy, ?£2oWas dissolved on the 30th of December, 1678. This latter parliament is sometimes call- «d, by way of distinction, the "long parliament

Bl.Law Dict.(2d Ed.)— 47

of Charles II.” Mozley & Whitley.— Long quinto, the. An expression used to. denote part second of the year-book which gives reports of cases in 5 Edw. IV.— Long robe. A meta- phorical expression designating the practice ol profession of the law ; as, in the phrase “gentle- men of the long robe.”— Long ton. A measure of weight equivalent to 20 hundred-weight of 112 pounds each, or 2,240 pounds, as distin- guished from the “short” ton of 2,000 pounds. See Rev. St. U. S. § 2951 (U. S. Comp. St. 1901, p. 1941). But see Jones v. Giles, 10 Exch. 119, as to an English custom of reckoning a ton of iron “long weight” as 2,400 pounds.— Long va- cation. The recess of the English courts from August 10th to October 24th.

Longa poaaeaaio eat pads jus. Long possession is the law of peace. Branch, Princ. ; Co. Lift. 6.

Longa poaaeaaio jua parit. Long pos- session begets right. Fleta, lib. 3, c. 15, § 6.

Longa poaaeaaio parit jna poaaldendi, et to lilt actionem vero domino. Long possession produces the right of possession, and takes away from the true owner his ac- tion. Co. Litt. 1106.

Longnm tempua et longna uana qui excedit memoria hominum anfficit pro jnre. Co. Litt. 115a. Long time and long use, exceeding the memory of men, suffices for right.

5e apparatus — Carried into the 5th edition (1979).

## LOOKOUT.

A proper lookout on a ves- sel is some one in a favorable position to see, stationed near enough to the helmsman to communicate with him, and to receive communications from him, and exclusively employed in watching the movements of ves- sels which they are meeting or about to pass. The Genesee Chief v. Fltzhugh, 12 How. 462, 13 L. Ed. 1058.

5e apparatus — Carried into the 5th edition (1979).

## LOPWOOD.

A right in the inhabitants of a parish within a manor, in England, to lop for fuel, at certain periods of the year, the branches of trees growing upon the waste lands of the manor. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## LOQUELA.

Lat. • A colloquy ; talk. In old English law, this term denoted the oral altercations of the parties to a suit, which led to the issue, now called the “pleadiugs.” It also designated an “imparlance,” (q. r„) both names evidently referring to the talk- ing together of the parties. Loquela sine die, a postponement to an indefinite time.

Loquendnm at valgus; sentiendnm at doetl. We must speak as the common peo- ple; we

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must think as the learned. 7 Coke, 115. This maxim expresses the rule that, when words are used in a technical sense, they must be understood technically ; other- wise, when they may be supposed to be used in their ordinary acceptation.

5e apparatus — Not carried into the 5th edition (1979).

## LORD.

In English law. A title o. honor or nobility belonging properly to the degree of baron, but applied also to the

vrliole peerage, as In the expression “the house of lords.” 1 Bl. Comm. 396-400.

A title of oflice, as lord mayor, lord com- missioner, etc.

In feudal law. A feudal superior or pro- prietor; one of whom a fee or estate is held.

—Law lords. See Law.— Lord advocate.

The chief public prosecutor of Scotland. 2 Alis. Criin. Pr. 84. — Lord and vassal. In the feu- dal system, the grantor, who retained the do- minion or ultimate property, was called the “lord,” and the grantee, who had only the use or possession, was called the "vassal” or "feu- datory.”—Lord chief baron. The chief judge of the English court of exchequer, prior to the judicature acts.— Lord chief justice. See Justice.— Lord high chancellor. See

Chancellob. — Lord high steward. In Eng- land, when a person is Impeached, or when a peer is tried on indictment for treason or felony before the house of lords, one of the lords is ap- pointed lord high steward, and acts as speaker pro tempore. Sweet. — Lord high treasurer. An officer formerly existing in England, who had the charge of the royal revenues and cus- toms duties, and of leasing the crown lands. His functions are now vested in the lords com- missioners of the treasury. Mozley & Whitley. —Lord In gross. In feudal law. He who is lord, not by reason of any manor, but as the king in respect of his crown, etc. “Very lord” is be who is immediate lord to his tenant; and "very tenant,” he who holds immediately of that lord. So that where there is lord paramount, lord mesne, and tenant, the lord paramount is not very lord to the tenant. Wharton.— Lord Justice clerk. The second judicial officer in Scotland.— Lord keeper, or keeper of the great seal, was originally another name for the lord chancellor. After Henry II.’s reign they were sometimes divided, but now there cannot be a lord chancellor and lord keeper at the same time, for by St. 5 Eliz. c. 18, they are declared to be the same office. Cora. Dig. “Chancery,” B. 1. —Lord lieutenant. In English law. The viceroy of the crown in Ireland. The principal military officer of a county, originally appointed for the purpose of mustering the inhabitants for the defense of the country. — Lord mayor. The chief officer of the corporation of the city of London is so called. The origin of the appella- tion of “lord,” which the mayor of London en- joys, is attributed to the fourth charter of Ed- ward III., which conferred on that officer the honor of having maces, the same as royal, car- ried before him by the serjeants. Pull. Laws & Cust. Loud. — Lord mayor’s court. In Eng- lish law. This is a court of record, of law and equity, and is tbe chief court of justice within the corporation of London. Theoretically the lord mayor and aldermen are supposed to pre- side, but the recorder is in fact the acting judge. It has jurisdiction of all

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personal and mixed actions arising within the city and liberties without regard to the amount in controversy. See 3 Stepb. Comm. 449, note 1. — Lord of a manor. The grantee or owner of a manor.— Lord ordinary is the judge of the court of session in Scotland, who officiates for the time being as the judge of first instance. Dari. Pr. Ct. Sess.— Lord paramount. A term applied to the King of England as the chief feudal pro- prietor. the theory of the feudal system being that all lands in the realm were held mediately or immediately from him. See De Peyster v. Michael, 6 N. V. 495, 57 Am. Dec. 470; Opin- ion of Justices, 66 N. H. 629, 33 Atl. 1076.— Lord privy seal, before the 30 Hen. VIII., ' was generally an ecclesiastic. The office has since been usually conferred on temporal peers above the degree of barons. He is appointed by letters patent. The lord privy seal, receiving a

warrant from the signet office, issues the privy seal, which is an authority to the lord chancel- lor to pass the great seal where the nature of the grant requires it. But the privy seals for money begin in the treasury, whence the first warrant issues, countersigned by the lord treas- urer. The lord privy seal is a member of the cabinet council. Enc. Lond.— Lord warden of Cluque Ports. See Cinque Pouts.— Lords appellants. Five peers who for a time super- seded Richard II. in his government, and whom, after a brief control of the government, he in turn superseded in 1397, and put the survivors of them to death. Richard II.’e eighteen com- missioners (twelve peers and six commoners! took their place, as an embryo privy council acting with full powers, during the parliament- ary recess. Brown.— Lords commissioners. In English law. When a high public office in the state, formerly executed by an individual, is put into commission, the persons charged with the commission are called "lords commission- ers,” or sometimes “lords” or "commissioners” simply. Thus, we have, in lien of the lord treas- urer and lord high admiral of former times, the lords commissioners of the treasury, and the lords commissioners of the admiralty ; and, whenever the great seal is put into commission, tbe persons charged with it are called “com- missioners” or “lords commissioners” of the great seal. Mozley & Whitley. — Lord’s day. A name sometimes given to Sunday. Co. Litt. 135.— Lords justices of appeal. In English law. The title of the ordinary judges of the court of appeal, by Jud. Act 1877, { 4. Prior to the judicature acts, there were two “lords justices of appeal In chancery,” to whom an ap- peal lay from a vice-chancellor, by 14 & 15 Viet, c. 83.— Lords atarckers. Those noblemen who lived on the marches of Wales or Scotland, who in times past had their laws and power of life and death, like petty kings. Abolished by 27 Hen. VIII. c. 26, and 6 Edw. VI. c. 10. Whar- ton.—Lords of appeal. Those members of the house of lords of whom at least three must be present for the hearing and determination of appeals. They are the lord chancellor, the lords of appeal in ordinary, and such peers of parlia- ment as hold, or have held, high judicial offices, such as ex -chancellors and judges of the superior courts in Great Britain apd Ireland. App. Jur. Act 1876, IS 5, 25.— Lords of appeal in or- dinary. These are appointed, with a salary of £6,000 a year, to aid the house of lords in the hearing of appeals. They rank as barons for life, but sit and vote in the house of lords during the tenure of their office only. App. Jur. Act 1876. I 6.— Lords of erection. On the Reformation in

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Scotland, the king, as proprietor of benefices formerly held by abbots and priors, gave them out in temporal lordships to favor- ites, who were termed “lords of erection.” Wharton. — Lords of parliament. Those who have scats in the house of lords. During bank- ruptcy, peers are disqualified from sitting or voting in the house of lords. 34 A 35 Viet. c. 50.— Lords of regality. In Scotch law. Per- sons to whom rights of civil and criminal juris- diction were given by the crown.— Lords o*>- dainers. Lords appointed in 1312, in the reign of Edward II., for the control of the sovereign and the court party, and for the general reform and better government of the country. Brown. —Lords spiritual. The archbishops and bisn- ops who nave seats in the house of lords.— Lords temporal. Those lay peers who have seats in the nouse of lords.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 20:25, KJV]**

Ye know that the princes of the Gentiles exercise dominion over them, and they that are great exercise authority upon them.

Why: Human lordship and dominion named directly by the speaker, bearing on the feudal superior and title of honor.

## LORDSHIP.

In English law. Domin- ion, manor, seigniory, domain; also a title of honor used to a nobleman not being a duke. It is also the customary titulary ap- pellation of the Judges and some other per- sons in authority and office.

5e apparatus — Carried into the 5th edition (1979).

## LOSS.

In insurance. The injury or damage sustained by the insured in conse- quence of the happening of one or more of the accidents or misfortunes against which the insurer, in consideration of the premium, has undertaken to indemnify the insured. 1 Bout. Inst no. 1215.

— Actual loss. One resulting from the real and substantial destruction of the property insured. — Constructive loss. One resulting from such injuries to the property, without its destruction, as render it valueless to the as- sured or prevent its restoration to the original condition except at a cost exceeding its value. —Direct loss by fire is one resulting imme- diately and proXiinately from the fire, and not remotely from some of the consequences or ef- fects of the fire. Insurance Co. v. Leader, 121 Ga. 200, 48 S. E. 974; Ermentrout v. Insur- ance Co., 03 Minn. 305, 65 N. W. 635, 30 L.

R. A. 346, 56 Am. St. Rep. 481; California Ins. Co. v. Union Compress Co., 133 U. S. 387, 10 Sup. Ct 365, 33 L. Ed. 730.— Loss of con- sortium. See Consortium.— Partial loss. A loss of a part of a thing or of its value, or any damage not amounting (actually or con- structively) to its entire destruction; as con- trasted with total loss. Partial loss is one in which the damage done to the thing insured is not so complete as to amount to a total loss, either actual or constructive. In every such case the underwriter is liable to pay such proportion of the sum

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which would be payable on total loss as the damage sustained by the subject of insurance bears to the whole value at the time of insurance. 2 Steph. Comm. 132, l33; Crump. Ins. f 331: Mozley Sc Whitley. Partial loss implies a damage sustained by the ship or cargo, which falls upon the respective owners of the property so damaged ; and, when happening from any peril insured against by the policy, the owners are to be indemnified by the underwriters, unless in cases excepted by the express terms of the policy. Padelford v. Boardman, 4 Mass. 548; Globe Ins. Co. v. Sherlock, 25 Ohio St. 65; Wiliard v. Insurance Co., 30 Mo. 35.— Salvage loss. In the lan- guage of marine underwriters, this term means the difference between the amount of salvage, after deducting the charges, and the original value of the property insured. Devitt v. Insur- ance Co., 61 App. Div. 390, 70 N. Y. Supp. 662 ; Koons v. La Fonciere Compagnie (D. C.) 71 Fed. .981.— Total loss. See that title.

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## LOST.

An article is “lost” when the own- er has lost the possession or custody of it. In- voluntarily and by any means, but more par- ticularly by accident or his own negligence or forgetfulness, and when he is ignorant of its whereabouts or cannot recover it by an ordinarily diligent search. See State Sav. Bank v. Buhl, 129 Mich. 193, 88 N. W. 471, 56 L. R. A. 944; Belote v. State, 36 Miss. 120, 72 Am. Dec. 163; Hoagland v. Amuse- ment Co., 170 Mo. 335, 70 S. W. 878, 94 Am. St Rep. 740.

As applied to ships and vessels, the term means “lost at sea," and a vessel lost is one that 'has totally gone from the owners against their will, so that they know noth- ing of it whether it still exists, or not, or one which they know is no longer within their use and control, either in consequeuce of capture by enemies or pirates, or an un- known foundering, or sinking by a known 8$orm, or collision, or destruction by shipwreck. Bennett v. Garlock, 10 Hun (N. Y.) 338; Collard v. Eddy, 17 Mo. 355; Insurance Co. v. Gossler, 7 Fed. Cas. 406.

—Lost or not lost. A phrase sometimes in- serted in policies of marine insurance to sig- nify that the contract is meant to relate back to the beginning of a voyage now in progress, or to some other antecedent time, and to be val- id and effectual even if, at the moment of ex- ecuting the policy, the vessel should have al- ready perished by some of the perils insured against, provided that neither party has knowl- edge of that fact or any advantage over the other in the way of superior means of infor- mation. See Hooper v. Robinson, 98 U. S. 537. 25 L. Ed. 219; Insurance Co. v. Fol- som, 18 Wall. 251, 21 L. Ed. 827.— Lost pa- pers. Papers which have been so mislaid that they cannot be found after diligent search.— Lost property. Property which the owner has involuntarily parted with and does not know where to find or recover it, not including property which he has intentionally concealed or deposited in a secret place for safe-keeping. See Sovern v. Yoran, 16 Or. 269, 20 Pac. 100, 8 Am. St. Ren. 293 ; Pritchett v. State, 2 Sneed (Tenn.) 288, 62 Am. Dec. 468; State v. Cummings, 33 Conn. 260, 89 Am. Dec. 208; Loucks v. Gallogly, 1 Misc. Rep. 22, 23 N. Y. Supp. 126; Danielson v. Roberts, 44 Or. 108, 74 Pac. 913, 65 L. R. A. 626, 102 Am. St. Rep 627.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again.

Why: The duty regarding stray property involuntarily parted from its owner, stated as law. BORDERLINE red-letter: Covenant-Code form, not first-person divine speech — flag left off.

## LOT.

The arbitrament of chance; ha*- ard. That which fortuitously determines what course shall be taken or what disposi- tion be made of property or rights.

A share ; one of several parcels into which property Is divided. Used particularly of land.

The thirteenth dish of lead in the mines of Derbyshire, which belong to the crown.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Acts 1:26, KJV]**

And they gave forth their lots; and the lot fell upon Matthias.

Why: The lot as decision-procedure, matching the entry's arbitrament of chance. Narrative, not deity speech.

## LOT AND SCOT.

In English law. Cer- tain duties which must be paid by those who claim to exercise the elective franchise within certain cities and boroughs, before they are entitled to vote. It is said that the practice became uniform to refer to the poor- rate as a register of “scot and lot” voters; so that the term, when employed to define a right of election, meant only the payment by a parishioner of the sum to which be was as- sessed on the poor-rate. Brown.

5e apparatus — Carried into the 5th edition (1979).

## LOT OF LAND.

A small tract or par- cel of land in a village, town, or city, suitable for .building, or for a garden, or other similar uses. See Pllz v. Killingsworth, 20 Or. 432. 26 Pac. 305 ; Wilson v. Proctor, 28 Minn. 13, 8 N. W, 830; Webster v. LitUe Rock, 44 Ark. 551 ; Diamond Mach. Co. v. Ontonagon, .72 Mich. 261, 40 N. W. 448; Fitzgerald v. Thomas, 61 Mo. 500 ; Phillipsburgh v. Bruch, 37 N. J. Eq. 486.

EOTHERWITE, or LEYERWIT. In

old English law. A liberty or privilege to take amends for lying with a bondwoman without license

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## LOTTERY.

A lottery Is any scheme for the disposal or distribution of property by chance among persons who have paid, or

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promised or agreed to pay, any valuable con- sideration for the chance of obtaining such property, or a portion of it, or for any share of or interest in such property, upon any agreement, understanding, or expectation that it is to be distributed or disposed of by lot or chance, whether called a "lottery," a "raffle," or a “gift enterprise,” or by what- ever name the same may be known. Pen. Code Cal. § 319; Pen. Code Dak. g 373. See, also, Dunn v. People, 40 111. 467 ; Cha- vannah v. State, 49 Ala*. 397; Stearnes v. State, 21 Tex. 692 ; State v. Lovell, 39 N.

J. Law, 461 ; State v. Mumford, 73 Mo. 650, 39 Am. Rep. 532; U. S. v. Politzer (D. C.) 59 Fed. 274 ; Fleming v. Bills, 3 Or. 289 ; Com. v. Manderfleld, 8 Pliila. (Pa.) 459.

Lon le ley done chose, la oeo done remedle a vener a ceo. 2 Rolle, 17. Where the law gives a right, It gives a remedy to recover.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: FCC v. American Broadcasting Co., 347 U.S. 284 (1954)]**

The entry's definition encodes the three classic elements of a lottery — prize, chance, and consideration — the triad the Supreme Court applied in holding that broadcast giveaway programs lacking consideration were not lotteries.

Why: The entry defines a lottery as distribution 'of property by chance among persons who have paid... valuable consideration for the chance' — prize, chance, consideration. FCC v. American Broadcasting is the leading fede…

**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: Disposal by chance with the disposing referred to the LORD — the lottery's own theology. Wisdom saying, not deity speech.

## LOUAGE.

Fr. This Is the contract of hiring and letting in French law, and may be either of things or of labor. The varieties of each are the following:

1. Letting of things, — bail & loycr being the letting of houses ; bail a fcrme being the letting of lands.

2. Letting of labor, — loycr being the let- ting of personal service ; bail & cheptel being the letting of animals. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## LOURCURDUS.

A ram or bell-wether. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LOVE-DAY.

In old English law. The day on which any dispute was amicably set- tled between neighbors; or a day on which one neighbor helps another without hire. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: The amicable settlement of a dispute between neighbors, commanded directly — the love-day's own doctrine.

## LOW JUSTICE.

In old European law, jurisdiction of petty offenses, as distinguish- ed from “high Justice,” ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## LOW WATER.

The furthest receding point of ebb-tide. Howard v. Ingersoll, 13 How. 417, 14 L. Ed. 189.

— Low-water mark. See Water-Mabk.

' LOWBOTE. A recompense for the death of a man killed in a tumult. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: For the LOWBOTE sub-entry carried inside this headword's body (a recompense for the death of a man killed in a tumult): The law of recompense or satisfaction for homicide stated in the negative — the genuine legal ter...

## LOWERS.

Fr. In French maritime law. Wages. Ord. Mar. liv. 1, tit. 14, art. 16.

5e apparatus — Carried into the 5th edition (1979).

## LOYAL.

Legal; authorized by or con- forming to law. Also faithful In one’s polit- ical relations ; giving faithful support to one’s prince or sovereign or to the existing government.

5e apparatus — Carried into the 5th edition (1979).

**[Hip-hop] — Hip-hop**

**[Chris Brown, 'Loyal', 2013]**

Lyric: "These hoes ain't loyal." Black's LOYAL includes "faithful in one's political relations; giving faithful support"; the hook is the era's shorthand for breached fidelity — the lyric names the duty of loyalty by its violation.

Why: Genuine because the word is used in its ordinary fidelity sense that the legal definition rests on, and the line's cultural ubiquity makes it the clearest hip-hop statement of what loyalty-as-duty means when broken. V...

## LOYALTY.

Adherence to law. Faith- fulness to one’s prince or sovereign or to the existing government.

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Lubricant linguae non facile trahen- dnm eat in poenam. Cro. Car. 117. A slip of the tongue ought not lightly to be sub- jected to punishment.

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**[Scripture] — Scripture**

**[Ecclesiastes 8:2, KJV]**

I counsel thee to keep the king's commandment, and that in regard of the oath of God.

Why: Loyalty as covenant-obedience to the king, kept in regard of the oath of God. Wisdom saying, not deity speech.

**[Hip-hop] — Hip-hop**

**[Kendrick Lamar, 'DNA.', 2017]**

Lyric: "I got, I got, I got, I got / Loyalty, got royalty inside my DNA." Black's LOYALTY is "faithfulness to one's prince or sovereign"; Kendrick pairs loyalty with royalty, making fidelity a constitutive, inherited trait of the person.

Why: Verified verbatim via lyric sources (Shazam/NPR); genuine lexical match in the legal sense (faithfulness/allegiance), elevated by the loyalty/royalty wordplay that ties fidelity to sovereignty.

## LUCID INTERVALS.

In medical ju- risprudence. Intervals occurring in the men- tal life of an insane person during which he is completely restored to the use of his reason, or so far restored that he has suffi- cient intelligence, judgment, and will to enter Into contractual relations, or perform other legal acts, without disqualification by reason of his disease. See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Daniel 4:34, KJV]**

And at the end of the days I Nebuchadnezzar lifted up mine eyes unto heaven, and mine understanding returned unto me

Why: Restored reason after derangement — scripture's own lucid-interval case. Nebuchadnezzar's words, not deity speech.

## LUCRA NUPTIALIA.

Let In Roman law. A term including everything which a husband or wife, as such, acquires from the estate of the other, either before the mar- riage, or on agreeing to it, or during its continuance, or after Its dissolution, and whether the acquisition is by pure gift, of by virtue of the marriage contract, or against the will of the other party by law or statute. See Mackeld. Rom. Law, § 580.

5e apparatus — Not carried into the 5th edition (1979).

## LUCRATIVA CAUSA.

Lat In Roman law. A consideration which is voluntary; that is to say, a gratuitous gift, or such like. It was opposed to onerosa causa, which de- noted a valuable consideration. It was a principle of the Roman law that two lucra- tive causes could not concur In the same per- son as regarded the same thing; that is to say, that, when the same thing was bequeath- ed to a person by two different testators, he could not have the thing (or its value) twice over.

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Brown.

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## LUCRATIVA USUCARIO.

Lot This

species of usucapio was permitted in Roman law only In the case of persons taking pos- session of property upon the decease of its late owner, and In exclusion or deforcement of the heir, whence it was called “usucapio pro harede." The adjective “ lucrativa ” de- noted that property was acquired by this usucapio without any consideration or pay- ment for it by way of purchase ; and, as the possessor who so acquired the property was a maid fide possessor, his acquisition, or usu- capio, was called also "improba," (1. c., dis- honest;) but this dishonesty was tolerated (until abolished by Hadrian) as an incentive to force the hares to take possession, In or- der that the debts might be paid and the sacrifices performed; and, as a further in- centive to the hares, this usucapio was com- plete In one year. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## LUCRATIVE.

Yielding gain or profit; profitable; bearing or yielding a revenue or salary. .

—Lucrative bailment. See Bailment.— Lu- crative office. One which yields a revenue (in the form of fees or otherwise) or a fixed salary to the incumbent : according to some au- thorities, one which yields a compensation sup- posed to be adequate to the services rendered

and in excess of the expenses incidental to the office. See State v. Kirk, 44 Ind. 405. 15 Am. Rep. 239; Dailey v. State, 8 Blackf. (Ind.) 330; Crawford v. Dunbar, 52 Cal. 39; State v. De Gress, 53 Tex. 400. — Lucrative succession. In Scotch law. A kind of passive title by which a person accepting from another, without any onerous cause, (or without paying value,) a disposition of any part of bis heritage, to which the receiver would have succeeded as heir, is liable to all the grantor’s debts con- tracted before the said disposition. 1 Forb. Idst pt. 3, p. 102.

5e apparatus — Carried into the 5th edition (1979).

## LUCRATUS.

In Scotch law. A gainer.

5e apparatus — Not carried into the 5th edition (1979).

## LUCRE.

Gain In money or goods ; profit ; usually In an ill sense, or with the sense of something base or unworthy. Webster.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:3, KJV]**

Not given to wine, no striker, not greedy of filthy lucre; but patient, not a brawler, not covetous.

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Why: The entry's gain in its ill sense is the exact phrase filthy lucre. Paul's words, not deity speech.

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Lyric: "Cash rules everything around me / C.R.E.A.M., get the money / Dollar dollar bill, y'all." Black's LUCRE is "gain in money or goods; profit"; C.R.E.A.M. (Cash Rules Everything Around Me) is hip-hop's canonical statement of money as motive and master.

Why: Direct definitional match: the acronym unpacks to the same claim the legal term makes about gain. Verbatim-certain chorus; no stretching required.

## LUCRI CAUSA.

Lat In criminal law. A term descriptive of the intent with which property is taken in cases of larceny, the phrase meaning “for the sake of lucre’’ or gain. State v. Ryan, 12 Nev. 403, 28 Am. Rep. 802 ; State v. Slingerland, 19 Nev. 135, 7 Pac. 280.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Joshua 7:21, KJV]**

When I saw among the spoils a goodly Babylonish garment, and two hundred shekels of silver, and a wedge of gold of fifty shekels weight, then I coveted them, and took them

Why: Coveting then taking: theft-for-gain confessed verbatim — the larceny intent the entry defines. Achan's confession, not deity speech.

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Lyric: "Cash rules everything around me / C.R.E.A.M., get the money / Dollar dollar bill, y'all." The phrase means "for the sake of lucre or gain" — the intent element in larceny; the song's thesis is gain as the ruling motive of action.

Why: The lyric states the mental state the Latin phrase names: action done for the sake of gain. Same verbatim-certain chorus as LUCRE, applied here to the motive/intent sense rather than the noun sense.

## LUCRUM CESSANS.

Lat. In Scotch law. A ceasing gain, as distinguished from damnum datum, an actual loss.

. Lucrum f acere ex pupilli tutela tutor atom debet. A guardian ought not to make money out of the guardianship of his ward. Manning v. Manning's Ex’rs, 1 Johns. Ch. (N. Y.) 527, 535.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Hadley v. Baxendale, 9 Exch. 341 (1854)]**

The entry's civil-law distinction between lost gain (lucrum cessans) and actual loss (damnum datum) is the taxonomy within which the common law's great lost-profits authority operates: consequential damages are recoverable only as the parties' contemplation made them foreseeable.

Why: The entry draws the distinction; Hadley v. Baxendale states the recoverability rule for the lost-gain side — damages either arising naturally from the breach or within the reasonable contemplation of the parties (the...

## LUCTUOSA 1L2EREDXTAS.

A mourn- ful inheritance. See H,ekeditas Luctuosa.

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5e apparatus — Not carried into the 5th edition (1979).

## LUCTUS.

In Roman law. Mourning.

See Annus Luctus.

5e apparatus — Not carried into the 5th edition (1979).

## LUGGAGE.

Luggage may consist of any articles intended for the use of a passenger while traveling, or for his personal equip- ment. Civ. Code Cal. f 2181.

This term is synonymous with “baggage,” but is more commonly used in England than In America. See Great Northern Ry. Co. v. Shepherd, 8 Exch. 37 ; Duffy v. Thompson, 4

E. D. Smith (N. Y.) 180; Choctaw, etc., R. Co. v. Zwirtz, 13 Okl. 411, 73 Pac. 941.

LUMEN, lot. In the civil law. Light ; the light of the sun or sky ; the privilege of receiving light into a house.

A light or window.

5e apparatus — Not carried into the 5th edition (1979).

## LUMINA.

Lat. In the civil law. Lights ; windows ; openings to obtain light for one’s building.

5e apparatus — Not carried into the 5th edition (1979).

## LUMINARE.

A lamp or candle set burn- ing on the altar of any church or chapel, for the maintenance whereof lands and rent- charges were frequently given to parish churches, etc. Keunett, Gloss.

5e apparatus — Not carried into the 5th edition (1979).

## LUMPING SALE.

As applied to judicial sales, this term means a sale in mass, as

where several distinct parcels of real estate, or several articles of personal property, are sold together for a “lump” or single gross sum. Anniston Pipeworks v. Williams, 106 Ala. 324, 18 South. Ill, 54 Am. St Rep. 51.

5e apparatus — Carried into the 5th edition (1979).

## LUNACY.

Lunacy is that condition or habit in which the mind is directed by the will, but is wholly or partially misguided or erroneously governed by it; or it is the im- pairment of any one or more of the faculties of the mind, accompanied with or inducing a defect in the comparing faculty. Owlngs’ Case, 1 Bland (Md.) 386, 17 Am. Dec. 311; See Insanity.

— Inquisition (or inquest) of lunacy. A

quasi-judicial examination into the sanity or in- sanity of a given person, ordered by a court

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having jurisdiction, on a proper application and sufficient preliminary showing of facts, held by the sheriff (or marshal, or a magistrate, or the court itself, according to the local practice) with the assistance of a special jury, usually of six men, who are to hear evidence and render a ver- dict in accordance with the facts. This is the usual foundation for an order appointing a guardian or conservator for a person adjudged to be insane, or for committing him to an insane asylum. See Hughes v. Jones, 116 N. Y. 67, 22

N. E. 446, 5 L. R. A. 637, 15 Am. St. Rep. 386; Hadaway v. Smith, 71 Md. 319, 18 Atl. 589 ; Mills' Ann, St. Colo. J 2935.— Lunacy, commission of. A commission issuing from a court of competent jurisdiction, authorizing an inquiry to be made into the mental condition of a person who is alleged to be a lunatic.

5e apparatus — Carried into the 5th edition (1979).

## LUNAR.

Belonging to or measured by the revolutions of the moon.

— Lunar month. See Month.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:14, KJV]**

And God said, Let there be lights in the firmament of the heaven to divide the day from the night; and let them be for signs, and for seasons, and for days, and years

Why: The moon's office as time-measure, fitting the entry's measurement by the moon's revolutions. Narrative of the fiat, not deity speech.

## LUNATIC.

A person of deranged or un- sound mind ; a person whose mental faculties are in the condition called "lunacy," (q. v.)

Lunations, qnl gasdet in lncidis in* tervallis. He Is a lunatic who enjoys lucid intervals. 1 Story, Cont. | 73.

^•UNDRESS. In old English law. A sil- ver penny, so called because it was to be coin- ed only at London, (o Londres,) and not at the country mints. Lown. Essay Coins, 17; Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 17:15, KJV]**

Lord, have mercy on my son: for he is lunatick, and sore vexed

Why: The very word in the text, borne on the case of the deranged boy. The father's plea, not deity speech.

## LUPANATRIX.

A bawd or strumpet.

3 Inst. 206.

5e apparatus — Not carried into the 5th edition (1979).

## LUPINUM CAPUT GERERE.

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Lat. To be outlawed, and have one's head exposed, like a wolf’s, with a reward to him who should take it. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## LURGULARY.

Casting any corrupt or poisonous thing into the water. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LUSHBOROW.

In old English law. A base sort of money, coined beyond sea In the likeness of English coin, and introduced into England in the reign of Edward III. Pro- hibited by St. 25 Edw. III. c. 4. Spelman; Cowell.

LYTjB

5e apparatus — Not carried into the 5th edition (1979).

## LUXURY.

Excess and extravagance which was formerly an offense against the public economy, but Is not now punishable. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LYCH-GATE.

The gate Into a church- yard, with a roof or awning hung on posts over It to cover the body brought for burial, when it rests underneath. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## LYEF-GELD.

Sax. In old records. Lief silver or money; a small fine paid by the crstomary tenant to the lord for leave to plow or sow, etc. Somn. Gavelkind, 27.

5e apparatus — Not carried into the 5th edition (1979).

## LYING BY.

A person who, by his pres- ence and silence at a transaction which af- fects bis interests, may be fairly supposed to acquiesce in it, if he afterwards propose to disturb the arrangement, is said to be pre- vented from doing so by reason that he has been lying by.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Qui tacet consentire videtur]**

Presence and silence at a transaction affecting one's interests, later treated as acquiescence barring disturbance of the arrangement, is the classical rule that he who is silent when he ought to speak is deemed to consent.

Why: The entry states a rule of deemed acquiescence ('may be fairly supposed to acquiesce in it... prevented from doing so by reason that he has been lying by') — estoppel by silence. Qui tacet consentire videtur is that r...

## LYING IN FRANCHISE.

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A term de- scriptive of waifs, wrecks, es trays, and the like, which may be seized without suit or ac- tion.

5e apparatus — Carried into the 5th edition (1979).

## LYING IN GRANT.

A phrase applied to incorporeal rights. Incapable of manual tra- dition, and which must pass by mere deliv- ery of a deed.

5e apparatus — Carried into the 5th edition (1979).

## LYING IN WAIT.

Lying in ambush; lying hid or concealed for the purpose of making a sudden and unexpected attack upon a person when be shall arrive at the scene. In some Jurisdictions, where there are sev- eral degrees of murder, lying In wait is made evidence of that deliberation and premeditated Intent which is necessary to characterize murder in the first degree.

This term Is not synonymous with "con- cealed.” If a person conceals himself for the purpose of shooting another unawares, he is lying In wait; but a person may, while con- cealed, shoot another without committing the crime of murder. People v. Miles, 65 Cal. 207.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:11, KJV]**

But if any man hate his neighbour, and lie in wait for him, and rise up against him, and smite him mortally that he die, and fleeth into one of these cities

Why: The exact phrase in the murder context the entry's degrees-of-murder doctrine needs. BORDERLINE red-letter: code form — flag left off.

## LYNCH LAW.

A term descriptive of the action of unofficial persons, organized bands, or mobs, who Seize persons charged with or suspected of crimes, or take them out of the custody of the law, and inflict sum- mary punishment upon them, without legal trial, and without the warrant or authority of law. See State v. Aler, 39 W. Va. 549, 20

S. E. 585; Bates’ Ann. St. Ohio, 1904, f 4426.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIV, § 1 — due process]**

The entry defines lynch law by the absence of legal trial and lawful authority; the Fourteenth Amendment states the affirmative constitutional guarantee — no deprivation of life, liberty, or property without due process of law — whose absence the entry describes.

Why: The entry's substance is punishment 'without legal trial, and without the warrant or authority of law.' The Due Process Clause is the constitutional prohibition of exactly that: summary deprivation without process. Th…

**[Scripture] — Scripture**

**[Exodus 23:2, KJV]**

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Thou shalt not follow a multitude to do evil

Why: The mob-action prohibition — scripture's limit on unofficial summary punishment without legal trial. BORDERLINE red-letter: code form — flag left off.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Mulligan, To Kill a Mockingbird, 1962]**

The canonical screen image of this entry's content: (paraphrase) a mob gathers at the county jail to seize Tom Robinson before his trial, and Atticus Finch stands them down. (paraphrase)

Why: The entry defines lynch law as unofficial persons or mobs seizing persons charged with crimes and inflicting summary punishment without legal trial. The film's jailhouse-mob scene stages exactly that mechanism — a pre...

## LYNDHURST’S (LORD) ACT.

This

statute (5 A 6 Wm. IV. c. 54) renders mar- riages within the prohibited degrees abso- lutely null and void. Theretofore such mar- riages were voidable merely.

5e apparatus — Not carried into the 5th edition (1979).

## LYON KING OF ARMS.

In Scotch law. The ancient duty of this officer was to car- ry public messages to foreign states, and it is still the practice of the heralds to make all royal proclamations at the Cross of Edin- burgh. The officers serving under him are heralds, pursuivants, and messengers. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## LYTAB.

In old Roman law. A name given to students of the civil law in the fourth year of their course, from their being supposed capable of solving any difficulty in law. TayL. Civil Law, 39.

u

M

5e apparatus — Not carried into the 5th edition (1979).

# M

## M.

This letter, need as a Roman numeral, stands for one thousand.

It was also, in old English law, a brand or stigma impressed upon the brawn of the thumb of a person convicted of manslaughter and admitted to the benefit of clergy. .

This letter was sometimes put on the face of treasury notes of the United States, and slgnffles that the treasury note bears in- terest at the rate of one mill per centum, and not one per centum interest. U. S. v. Hardy- man, 13 Pet. 176, 10 L. Ed. 113.

5e apparatus — Not carried into the 5th edition (1979).

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**M.**

also stands as an abbreviation for sev- eral words of which it is the initial letter: as “Mary,” (the English queen of that name,) “Michaelmas,” “master,” “middle.”

If. D. An abbreviation for “Middle Dis- trict,” in reference to the division of the United States into judicial districts. Also an abbreviation for “Doctor of Medicine.”

5e apparatus — Not carried into the 5th edition (1979).

# H

**H. R.**

An abbreviation for “Master of the Rolls.”

5e apparatus — Not carried into the 5th edition (1979).

# M

**M. T.**

An abbreviation for “Michaelmas Term.”

5e apparatus — Not carried into the 5th edition (1979).

**MACE.**

A large staff, made of the pre- cious metalB, and highly ornamented. It is used as an emblem of authority, and carried before certain public functionaries by a mace- bearer. In many legislative bodies, the mace is employed as a visible symbol of the dig- nity and collective authority of the house; In the house of lords and house of commons of the British parliament, it Is laid upon the table when the house is in session. In the United States house of representatives, it is borne upright by the sergeant-at-arms on extraordinary occasions, as when it is neces- sary to quell a disturbance or bring refrac- tory members to order.

— Mace-bearer. In English law. One who carries the mace before certain functionaries. In Scotland, an officer attending the court of session, and usually called a “macer." — Mace-proof. Secure against arrest.— Macer. A

mace-bearer; an officer attending the court of session in Scotland.

5e apparatus — Carried into the 5th edition (1979).

**MAOE-GREFF.**

In old English law. One who buys stolen goods, particularly food, knowing it to have been stolen.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Psalm 50:18, KJV]**

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When thou sawest a thief, then thou consentedst with him, and hast been partaker with adulterers.

Why: Consenting with the thief is the receiver's guilt — the buyer's knowing guilt in God's own address. The verse sits inside God's rebuke at Psalm 50:7-23 (I am God, even thy God); God is the speaker.

## MACEDONIAN DECREE.

In Roman law. This was the Senatus-consultum Mace- donianum, a decree of the Roman senate, first given under Claudius, and renewed un- der Vespasian, by which it was declared that no action should be maintained to recover a loan of money made to a child who was un- der the patrta potettas. It was intended to ■trike at the practice of usurers in making

loans, on unconscionable terms, to family heirs who would mortgage their future ex- pectations from the paternal estate. The law is said to have derived its name from that of a notorious usurer. See Mackeld. Rom. Law, i 432; Inst 4, 7, 1; Dig. 14, 6.

5e apparatus — Not carried into the 5th edition (1979).

## MACHECOIXARE.

To make a warlike device over a gate or other passage like to a grate, through which scalding water or pon- derous or offensive things may be cast upon the assailants. Co. Litt 5a.

5e apparatus — Not carried into the 5th edition (1979).

## MACHINATION.

Contriving a plot or conspiracy. The act of planning or contriv- ing a scheme for executing some purpose, particularly an evil purpose; an artful design formed with deliberation.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 37:12, KJV]**

The wicked plotteth against the just, and gnasheth upon him with his teeth.

Why: Evil scheming with deliberation, named directly. Psalmist's words, not deity speech.

## MACHINE.

In patent law. Any con- trivance used to regulate or augment force or motion; more properly, a complex struc- ture, consisting of a combination, or peculiar modification, of the mechanical powers.

The term "machine," in patent law, includes every mechanical device, or combination of me- chanical powers and devices, to perform some function and produce a certain effect or result. But where the result or effect is produced by chemical action, by the operation or application of some element or power of nature, qr of one substance to another, such modes, methods, or operations are called “processes.” A new pro- cess is usually the result of discovery ; a ma- chine, of invention. Corning v. Burden. 15 How. 252, 267, 14 L. Ed. 683. And see Pitts- burgh Reduction Co. v. Cowles Electric Co. (O. C.) 55 Fed. 316 ; Westinghouse v. Boyden Power Brake Co.. 170 U. S. 537. 18 Sup. Ct 70t, 42

L. Ed. 1136: Burr v. Duryee, 1 Wall. 570, 17

L. Ed. 650 : Stearns v. Russell, 85 Fed. 225, 29

C. C. A. 121 ; Wintermute v. Redington, 30 Fed. Cas. 370.

—Perfect machine. In patent law. A per- fected invention; not a perfectly constructed machine, but a machine so constructed as to em- body all the essential elements of the invention, in a form that would make them practical and operative so as to accomplish the result. But it is not necessary that it should accomplish that result in the most perfect manner, and be in a condition where it was not susceptible of a higher degree of perfection in its mere mechan- ical construction. American Hide, etc- Co. v. American Tool, etc., Co., 4 FiBh. Pat Cam. 299, 1 Fed. Cas. 647.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. § 101 — patentable subject matter: 'process, machine, manufacture, or composition of matter']**

The entry defines 'machine' as used in patent law; the patent statute is what gives the term that significance, naming 'machine' among the classes of patentable subject matter.

Why: The entry's definition exists because 35 U.S.C. § 101 makes 'machine' a statutory category of patentable invention. The statute is the source of the patent-law meaning the entry expounds. Genuine: without the statutor…

## MACHINERY.

A more comprehensive, term than “machine;” Including the appur- tenances necessary to the working of a ma- chine. Seavey v. Central Mat F. Ins. Co., Ill Mass. 540.

MACHOIiUM. In old English law. A barn or granary open at the top; a rick or stack of corn. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## MACTATOR.

L, Let In old European law. A murderer.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: The homicide law within God's covenant address to Noah.

## MACUXARE.

in old European law. To wound. Spelman. .

M«n POINT. A term used to designate the idea or subject to which is confined the derangement of the mental faculties of one suffering from monomania. Owing's Case, 1 Bland (Md.) 388, 17 Am. Dec. 311. See In- sanity.

5e apparatus — Not carried into the 5th edition (1979).

## MADE KNOWN.

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Where a writ of scire facias has been actually served upon a de- fendant, the proper return is that its con- tents have been “made known” to him.

5e apparatus — Carried into the 5th edition (1979).

### MADMAN.

An Insane person, particu- larly one suffering from mania in any of its forms. Said to be inapplicable to idiots (Com. v. Haskell, 2 Brewst. [Pa.] 497); but it is not a technical term either of medicine or the law, and is incapable of being applied with scientific precision. See Insanity.

5e apparatus — Carried into the 5th edition (1979).

### MADNESS.

See Insanity.

MATiltAg REGULATIONS. Certain regulations prescribed for the government of the Madras presidency. Mozley & Whitley.

M/EC-BURGH. In Saxon law. Kin- dred; family.

5e apparatus — Not carried into the 5th edition (1979).

### M2BGBOTE.

In Saxon law. A recom- pense or satisfaction for the slaying or mur- der of a kinsman. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## H

### HERE.

Famous; great; noted; as /El- mere, all famous. Gibs. Camd.

5e apparatus — Not carried into the 5th edition (1979).

## M

### MHREMTUM.

Timber; wood suitable for building purposes.

5e apparatus — Not carried into the 5th edition (1979).

### MAGIC.

In English statutes. Witch- craft and sorcery.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Deuteronomy 18:10, KJV]**

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There shall not be found among you any one that maketh his son or his daughter to pass through the fire, or that useth divination, or an observer of times, or an enchanter, or a witch

Why: The statute-territory named verbatim — the very offenses the statutes punish. BORDERLINE red-letter: code form — flag left off.

## MAGIS.

Eat. More; more fully; more in number; rather.

grants dispensations ; as to marry, to eat flesh on days prohibited, and the like. Bac. Abr. "Ecclesiastical Courts,” A, 5. — Mag liter bo- ii o rum vendendorum. In Roman law, a person appointed by judicial authority to in- ventory, collect, and sell the property of an absent or absconding debtor for the benefit of his creditors ; he was generally one of the creditors, and his functions corresponded gen- erally to those of a receiver or an assignee for the benefit of creditors under modem practice. See Mackeld. Rom. Law, § 521. — Magiiter cancellarise. In old English law. Master of the chancery ; master in chancery. These officers were said to be called “magtttri," be- cause they were priests. Latch, 133. — M agi ster equitum. Master of the horse. A title of office under the Roman Empire.— Magister UbeUorum. Master of requests. A title of office under the Roman Empire.— Magister litis. Master of the suit ; the person who con- trols the suit or its prosecution, or has the right so to do.— Macister^ navis. In the civil law. The master of a ship or vessel. He to whom the care of the whole vessel is committed. Dig. 14, 1. 1, 1, 5. — Magister palatii. Master of the palace or of the offices. An officer un- der the Roman Empire bearing some resem- blance to the modem lord chamberlain. Tayl. Civil Law, 37.— Magister soeietatis. In the civil law. The master or manager of a prrt nership ; a managing partner or general agent ; a manager specially chosen by a firm to admin- ister the affairs of the partnership. Story, Partn. S 95.

Magister renun nans. Use is the master of things. Co. Lltt. 2296. Usage Is a prin- cipal guide in practice.

Magister rerun nans; magistra rerun ejcperientia. Use is the master of things; experience is the mistress of things. Co. Litt. 69, 229; Wing. Max. 752.

5e apparatus — Not carried into the 5th edition (1979).

## MAGISTERIAL.

Relating or pertaining to the character, office, powers, or duties of a magistrate or of the magistracy.

—Magisterial precinct. In some American states, a local subdivision of a county, defining the territorial jurisdiction of justices of the peace and constables. Breckinridge Co. v. Mc- Cracken, 61 Fed. 194, 9 C. C. A. 44—

Magis de boao quam de malo lex in- tern dit. Co. Litt. 786. The law favors a good rather than a bad construction. Where the words used In an agreement are suscep- tible of two meanings, the one agreenble to, the other against, the Jaw, the former is adopted. Thus, a bond conditioned "to as- sign all offices” will be construed to apply to such offices only as are assignable. ' Chit. Cont. 78.

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Magis dlgnmn trakit ad »e minus dig-

«.m. The more worthy draws to Itself the less worthy. Yearb. 20 Hen. VI. 2, arg.

5e apparatus — Not carried into the 5th edition (1979).

## MAGISTER.

Lat. Ia English law. A

master or ruler; a person who has attained to some eminent degree in science. Cowell.

Xa the civil law. A title of several of- fices under the Roman Empire.

—Magister ad facilitates. In English ec- clesiastical law. The title of an officer who

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 23:8, KJV]**

But be not ye called Rabbi: for one is your Master, even Christ; and all ye are brethren.

Why: The master as ruler and instructor — the title the entry defines, claimed by the speaker.

## MAGISTRACY.

This term may have a more or less extensive signification according to the use and connection in which it occurs. In its widest sense it includes the whole body of public functionaries, whether their offices be legislative, Judicial, executive, or admin- istrative. In a more restricted (and more usual) meaning, it denotes the class of offi- cers who are charged with the application and execution of the laws. In a still more confined use, it designates the body of Judi- cial officers of the lowest- rank, and more es- pecially those who have jurisdiction for the trial and punishment of petty misdemeanors or the preliminary steps of a criminal prose- cution, such as police judges and justices of the jieace. The term also denotes the office of a magistrate.

5e apparatus — Not carried into the 5th edition (1979).

## MAGISTRAUA BREVIA.

In old Eng- lish practice. Magisterial writs; writs adapt- ed to special cases, and so called from being

MAGNUM .CAPE

framed by the masters or principal clerks of the chancery. Bract, fol. 4136; Orabb, Com. Law, 547, 548.

5e apparatus — Not carried into the 5th edition (1979).

## MAGISTRATE.

A public officer belong- ing to the civil organization of the state, and invested with powers und functions which may be either judicial, legislative, or execu- tive.

But the term is commonly used in a nar- rower sense, designating, in England, a per- son intrusted with the commission of the peace, and, in America, one of the class of inferior

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judicial officers, such as justices of the peace and police justices. Martin v. State, 32 Ark. 124; Scaulan v. Wright, 13 Pick. (Mass.) 528, 25 Am. Dec. 344 ; Ex parte White, 15 Nev. 146, 37 Am. Rep. 466; Kurtz v. State, 22 Fla. 44, 1 Am. St. Rep. 173.

A magistrate is an officer having power to Issue a warrant for the arrest of a person charged with a public offense. Pen. Code Cal. f 807.

The word ‘‘magistrate’’ does not necessarily imply an officer exercising any judicial functions. and might very well be held to embrace notaries and commissioners bf deeds. Schultz v. Merchants’ Ins. Co., 57 Mo. 336.

— Chief magistrate. The highest or princi- pal executive officer of a state (the governor) or of the United States (the president.) — Commit- ting magistrate. An Inferior judicial officer who is invested with authority to conduct the preliminary hearing of persons charged with crime, and either to discharge them for lack of sufficient prima facie evidence or to commit them to jail to await trial or (in some juris- dictions) to accept bail and release them thereon.—Police magistrate. An inferior judicial officer having jurisdiction of minor criminal offenses, breaches of police regulations, and the like ; so called to distinguish them from mag- istrates who have jurisdiction in civil cases al- so, as justices of the peace. People v. Curley. 5 Colo. 416; McDermont v. Dinnie, 6 N. D. 278. 09 N. W. 295. — Stipendiary magistrates. In Great Britain, the magistrates or police judges sitting in the cities and large towns, and appointed by the home secretary, are so called, as distinguished from the jus- tices of the peace in the counties who have the authority of magistrates.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: The appointment of judges and officers commanded — the public officer's charter. BORDERLINE red-letter: Moses' charge in code form — flag left off.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

Lyric: "Right about now, N.W.A court is in full effect / Judge Dre presiding in the case of N.W.A. versus the police department." Black's American sense of magistrate is an inferior judicial officer presiding over a court; the track opens with exactly that figure — "Judge Dre presiding."

Why: The song stages a magistrate at work — a presiding judicial officer opening a proceeding. Genuine illustration of the office; verbatim-certain opening skit.

## MAGISTRATE’S COURT.

In Ameri- can law. Courts in the state of South Caro- lina, having exclusive jurisdiction in mat- ters of contract of and under twenty dollars.

A local court in the city of Philadelphia, possessing the criminal jurisdiction of a po- lice court and civil jurisdiction in actions In- volving not more than one hundred dollars. It Is not a court of record. See Const. Pa. art 4, 1 12.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

Lyric: "Right about now, N.W.A court is in full effect / Judge Dre presiding in the case of N.W.A. versus the police department." The skit stages a full proceeding — court in session, named parties, prosecuting attorneys, presiding judge — hip-hop's most famous staged tribunal.

Why: Genuine illustration of the court itself (distinct from MAGISTRATE, which carries the officer): the track performs a courtroom from gavel to verdict. Verbatim-certain opening skit.

## MAGISTRATES.

Lat. In the civil law. A magistrate. Calvin. A judicial officer who had the power of hearing and determin- ing causes, but whose office properly was to inquire Into matters of law, as distinguished from fact. Hallifnx, Civil Law, b. 3, c. 8.

5e apparatus — Carried into the 5th edition (1979).

## MAGNA ASSISA.

In old English law. The grand assize. Glanv. lib. 2, cc. 11,12.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA ASSISA EUGENBA.

An an- cient writ to summon four lawful knights before the justices of assize, there to choose twelve others, with themselves to constitute the grand assize or great jury, to try the matter of right. The trial by grand assize was instituted by Henry IL in parliament, as an alternative to the duel In a writ of right. Abolished by 3 & 4 Wm. IV. c. 27. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA AVERIA.

In old pleading. Great beasts, as horses, oxen, etc. Cro. Jac. 580.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA CENTUM.

The great hundred, or six score. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA CRARTA.

The great charter. The name of a charter (or constitutional en- actment) granted by King John of England to the barons, at Runnymede, on June 15, 1215, and afterwards, with some alterations, confirmed in parliament by Henry III. and Edward I. This charter is justly regarded as the foundation of English constitutional lib- erty. Among its thirty-eight chapters are found provisions for regulating the adminis- tration of justice, defining the temporal and ecclesiastical jurisdictions, securing the per- sonal liberty of the subject and his rights of property, and the limits of taxution, and for preserving the liberties and privileges of the church. Magna Charta is so called, partly to distinguish it from the Charta de Foresta, which was granted about the same time, and partly by reason of its own

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transcendent im- portance.

Magna Okarta et Chart* de Foresta sont appelis les “dew grande* char- ter*.” 2 Inst 570. Magna Charta and the Charter of the Forest are called the “two great charters.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 5:1, KJV]**

Stand fast therefore in the liberty wherewith Christ hath made us free, and be not entangled again with the yoke of bondage.

Why: The great charter as liberty secured against the yoke of bondage. Paul's words, not deity speech.

## MAGNA COMPONERE PARVIS.

To

compare great things with small things.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA CULPA.

Great fault; gross negligence.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA NEGLIGENTIA.

In the civil law'. Great or gross negligence.

Magna negligent!* culpa eat; magna culpa dolus est. Gross negligence is fault ; gross fault Is fraud. Dig. 50, 16, 226.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 12:47-48, KJV]**

And that servant, which knew his lord's will, and prepared not himself, neither did according to his will, shall be beaten with many stripes. But he that knew not, and did commit things worthy of stripes, shall be beaten with few stripes. For unto whomsoever much is given, of him shall be much required.

Why: Scripture's own scale of fault and negligence — degrees of stripes answering degrees of knowledge — bearing on gross negligence as fault.

## MAGNA PRECARIA.

In old English law. A great or general reap-day. Cowell ; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNA SERJEANTXA.

In old English

law. Grand serjeanty. Fleta, lib. 2, c. 4.

* 1.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNUM CAPE.

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In old practice. Great or grand cape. 1 Reeve, Eng. Law, 418. See Grand Caps.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNUM CONCILIUM.

In old Eng- lish law. The great council ; the general council of the realm ; afterwards called “parliament.” 1 Bl. Comm. 148: 1 Reeve, Eng. Law, 62; Spelman.

. The king’s great council of barons and prelates. Spelman; Crabb, Com. Law. 228.

5e apparatus — Not carried into the 5th edition (1979).

## MAGNUS ROTULUS STATUTORUM.

The great statute roll. The first of the Eng- lish statute rolls, beginning with Magna Charta, and ending with Edward III. Hale, Com. Law, 16, 17.

5e apparatus — Not carried into the 5th edition (1979).

## MAHA-GEN.

In Hindu law. A banker or any great shop-keeper.

5e apparatus — Not carried into the 5th edition (1979).

## MAHAL.

In Hindu law. Any land or public fund producing a revenue to the gov- ernment of Hlndostan. “ Mahalaat ” is the plural.

5e apparatus — Not carried into the 5th edition (1979).

## MAHLBRIEF.

In maritime law. The German name for the contract for the build- ing of a vessel. This contract contains a specification of the kind of vessel Intended, her dimensions, the time within which she is to be completed, the price and times of pnyment, etc. Jac. Sea Laws, 2-8.

5e apparatus — Not carried into the 5th edition (1979).

## MAIDEN.

In Scotch law. An instru- ment formerly used in beheading criminals. It resembled the French guillotiue, of which it is said to have been the prototype. Whar- ton.

5e apparatus — Carried into the 5th edition (1979).

## MAIDEN ASSIZE.

In English law. Originally an assize at which no person was condemned to-die. Now it is a session of a criminal court at which there are no prison- ers to be tried.

5e apparatus — Not carried into the 5th edition (1979).

## MAIDEN RENTS.

A fine paid by the tenants of some manors to the lord for a li- cense to marry a daughter. Cowell. Or, perhaps, for the lord’s omitting the custom of marchcta, (q. v.)

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## MAXGNAGIUM.

A brasier’s shop, or, perhaps, a house. Cowell.

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## MAIHEM.

See Mayhem; Maim.

5e apparatus — Not carried into the 5th edition (1979).

## MAIHEMATUS.

Maimed or wounded.

5e apparatus — Not carried into the 5th edition (1979).

## MAIHEMIUM.

In old English law. Mayhem. ( q . v.)

Maihemium est homicidium inchoatsn. 3 Inst. 118. Mayhem is incipient homicide.

Maihemium est Inter orlmiua majors minimum, et Inter minora mailman.

Co. Litt. 127. Mayhem is the least of great crimes, and the greatest of small.

Maihemium est membri mntllatto, et diet poterit, nbi aliquis in aligns parte sui corporis effeotns sit inntUis ad png- mandnm. Co. Litt. 126. Mayhem is the mutilation of a member, and can be said to take place when a man is injured in any part of his body so as to be useless in fight.

5e apparatus — Not carried into the 5th edition (1979).

## MAIL.

As applied to the post-office, this term means the carriage of letters, whether applied to the bag into which they are put, the coach or vehicle by means of which they are transported, or any other means em- ployed for their carriage and delivery by public authority. Wynen v. Schappert, 6 Daly (N. Y.) 560. It may also denote the letters or other matter so carried.

The term “mall,” as used in Rev. St U.

S. § 5469 (U. S. Comp. St 1901, p. 8692) rel- ative to robbing the malls, may mean ei- ther the whole body of matter transported by the postal agents, or any letter or pack- age forming a component part of it U. S. v. Inabnet (D. C.) 41 Fed. 130.

Mail also denotes armor, as in the phrase a “coat of mail.”

In Scotch law. Rent ; a rent or tribute. A tenant who pays a rent is called a “mail- payer,” “mailer,” or “mall-man.” Skene.

—Mail matter. This term includes letters, ackets, etc., received for transmission, and to e transmitted by post to the person to whom such matter is directed. U. S. v. Huggett (C. C.) 40 Fed. 641; U. S. v. Rapp (C. C.) 80 Fed. 820.

5e apparatus — Carried into the 5th edition (1979).

## MAILABLE.

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Suitable or admissible for transmission by the mall ; belonging to the classes of articles which, by the laws and postal regulations, may be sent by post.

5e apparatus — Carried into the 5th edition (1979).

## MALLE.

In old English law. A kind of ancient money, or silver half-pence; a small rent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MAILED.

This word, as applied to a letter, means that the letter was properly prepared for transmission by the servants of the postal department and that it was put in the custody of the .officer charged with the duty of forwarding the mall. Pier v. HelnrichsholTen, 67 Mo. 163, 29 Am. Rep. 501.

5e apparatus — Carried into the 5th edition (1979).

## MAULS AND DUTIES.

In Scotch law. The rents of an estate. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## MAIM.

To deprive a person of a mem- ber or part of the body, the loss of which renders him less capable of fighting ; to commit mayhem, ( q . v.) State v. Johnson, 58 Ohio St. 417, 51 N. E. 40, 65 Am. SL Rep. 769.

In this respect, “to wound” is distinguishable from “to maim;” for the latter implies a per- manent injury, whereas a wound is any mutila- tion or laceration which breaks the continuity of the outer skin. Regina v. Bullock, 11 Cox, Crim. Cas. 125.

But both in common speech and as the word is now used in statutes and in the criminal law

generally, it Is not restricted to this common- law meaning, but signifies to cripple or mu- tilate in any way. to inflict any permanent in- jury upon the body, to inflict upon a person any injury which deprives him of the use of any limb or member of the body, or renders him lame or defective in bodily vigor. See Itegina v. Jeans, 1 Car. & K. 540: High v. State, 26 Tex. App. 545. 10 S. W. 238, 8 Am. St. Rep. 488; Baker v. State, 4 Ark. 56; Turman v. State, 4 Tex. App.. 688; Com. v. Newell, 7 Mass. 249.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 24:19-20, KJV]**

And if a man cause a blemish in his neighbour; as he hath done, so shall it be done to him; Breach for breach, eye for eye, tooth for tooth: as he hath caused a blemish in a man, so shall it be done to him again.

Why: Mayhem and blemish law verbatim — the exact legal root of the entry. BORDERLINE red-letter: code form — flag left off.

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## MAIN.

L. Fr. A hand. More common- ly written “ meyn .”

— Msin-s-msia. Immediately. Kelham.

5e apparatus — Carried into the 5th edition (1979).

## MAIN.

Principal, chief, most important in size, extent, or utility.

—Mala channel. The main channel of a river is that bed over which the principal vol- ume of water flows. See St. Louis, etc.. Pack- et Co. v. Keokuk A H. Bridge Co. (C. CJ 31 Fed. 757 ; Cessiil v. State, 40 Ark. 504 ; Dun* lieth A D. Bridge Co. v. Dubuque County, 55 Iowa, 558. 8 N. W. 443.— Main-rent. Vas- salage.—Main sea. See Sea.

5e apparatus — Carried into the 5th edition (1979).

## MAINAD.

In old English law. A false oath ; perjury. Cowell. Probably from Sax. “manatti" or “mainath” a false or de- ceitful oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: The false oath forbidden within the Decalogue's divine speech (Exodus 20:1, And God spake all these words, saying).

## MAINE-PORT.

A small tribute, com- monly of loaves of bread, which in some places the parishioners paid to the rector In lieu of small tithes. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## MAINOUR.

In criminal law. An arti- cle stolen, when found in the hands of the thief. A thief caught with the stolen goods In his possession is said to be taken “with the mainour.” that 1b, with the property in manu, in his hands. 4 Bl. Comm. 307.

The word seems to have corresponded with the Saxon “handhabend,” (q. v.) In modern law it has sometimes been written as an Eng- lish word “manner,” and the expression “taken in the manner” occurs in the books. Crabb, Eng. Law, 154.

MAINOVRE, at MAINCEUVRE. A

trespass committed by hand. See 7 Rich. II. c. 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore

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double.

Why: The exact legal fact-pattern: the thief taken with the stolen goods in his hands. BORDERLINE red-letter: code form — flag left off.

## MAINPERNABLE.

Capable of being bailed; bailable; admissible to bail on giv- ing surety by mainpernors.

5e apparatus — Not carried into the 5th edition (1979).

## MAINPERNOR.

In old practice. A surety for the appearance of a person under arrest, who Is delivered out of custody into the hands of his bail. “Mainpernors” dif- fer from “ball” in that a man’s bail may imprison or surrender him up before the stipulated day of appearance; mainpernors can do neither, but are barely sureties for his appearance at the day. Ball are only sureties that the party be answerable for the special matter for which they stipulate ; mainpernors are hound to produce him to answer all charges whatsoever. 3 Bl. Comm. 128. Other distinctions are made in the old books. See Cowell.

, MAINPRISE. The delivery of a person into the custody of mainpernors, (q. v .) Also the name of a writ (now obsolete) command- ing the sheriff to take the security of main- pernors and set the party at liberty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: Suretyship warned against verbatim — the surety for an arrested person's appearance. Wisdom saying, not deity speech.

## MAINSWORN.

Forsworn, by making false oath with hand (main) on book. Used in the north of England. BrownL 4; Hob. 125.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:12, KJV]**

And ye shall not swear by my name falsely, neither shalt thou profane the name of thy God: I am the LORD.

Why: False swearing forbidden in God's first-person voice — the forsworn oath condemned.

## MAINTAIN.

To maintain an action or suit is to commence or institute it ; the term imports the existence of a cause of action. Boutlller v. The Milwaukee, 8 Minn. 105, (Gil. 80, 81.)

5e apparatus — Carried into the 5th edition (1979).

## MAINTAINED.

In pleading. A tech- nical word indispensable in an indictment for maintenance. 1 Wlls. 325.

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5e apparatus — Carried into the 5th edition (1979).

## MAINTAINOR.

In criminal law. One- that maintains or seconds a cause depending, in suit between others, either by disbursing money or -nuking friends for either party to- wards his help. Blount One who is guilty of maintenance ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## MAINTENANCE.

Sustenance; support; assistance. The furnishing by one person to. another, for his support, of the means of living, or food, clothing, shelter, etc., par- ticularly where the legal relation of the par- ties is such that one is bound to support the other, as between father' and child, or hus- band and wife. Wall v. Williams, 93 N. C. 330, 53 Am. Rep. 458; Winthrop Co. v. Clin- ton, 196 Pa. 472, 46 Atl. 435, 79 Am. St Rep. 729; Regina v. Gravesend, 5 El. A Bl. 466; State v. Beatty, 61 Iowa, 307, 16 N. W. 149; In re Warren Insane Hospital, 3 Pa. List.

R. 223.

In criminal law. An unauthorized and ofBcious interference in a suit in which the offender has no interest to assist one of the: parties to it against the other, with money or advice to prosecute or defend the action. 1 Russ. Crimes, 254. ■

Maintenance, in general, signifies an unlawful taking in hand or upholding of qnarrels and sides, to the hindrance of common right Cot. Litt. 3686; Hawk. P. C. 303.

Maintenance is the assisting another person hr a lawsuit, without having any concern in the subject Wickham v. Conklin, 8 Johns. (N. Y.) 220.

Maintenance is where one officiously inter-, meddles in a suit which in no Way belongs to him. The term does not include all kinds of aid in the prosecution or defense of another's cause. It does not extend to persons having an Interest in the thing in controversy, nor to' persons of kin or affinity to either party, nor to counsel or attorneys, for their acta are not officious, nor unlawful. The distinction be- tween “champerty" and “maintenance” is that maintenance is the promoting, or undertaking to promote, a suit by one who has no lawful cause to do so, and champerty is an agreement for a division of the thing in controversy, in the event of success, as a reward for the un~

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lawful assistance. Bayard- v. McLane, 3 liar. (Del.) 208.

“Maintenance," at common law. signifies an unlawful taking in band dr upholding of quar- rels or sides, to the disturbance or hindrance of common ri^ht. The maintaining of one side, in consideration of some bargain to have part of the thing in dispute, is called “champerty.” Champerty, therefore, is a species of mainte- nance. Richardson v. Rowland, 40 Conn. 570.

And see also. Oilman v. Jones. 87 'Ala. 601, 5‘Sonth.‘785, 4 L. R. A. 113: Brown v. Beau- champ. 5 T. B. Mon. (Ky.) 413. 17 Am. Dec. 81 ; Gowen v. Nowell, 1 Me. 292 ; Vaughan v. Marable, 64 Ala. 60; Thurston v. Pereival, 1 Pick. (Mass.) 415; Hovey v. Hobson. 51. Me. 62;

Quigley v, Thompson, 53 Ind. 320.

MAIOR, An old form of “mayor.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:8, KJV]**

But if any provide not for his own, and specially for those of his own house, he hath denied the faith, and is worse than an infidel.

Why: The duty of sustenance and support where the legal relation binds — father and child, house and household. Paul's words, not deity speech.

## MAIRE.

In old Scotch law. An officer to whom process was directed. Otherwise called “mair of fle,” (fee,) and classed with the “serjand.” Skene.

In French law. A mayor.

5e apparatus — Not carried into the 5th edition (1979).

## MAIR IE.

In French law. The govern- ment buildtng of each commune. It con- tains the record office of all civil acts nnd the list of voters ; and It is there that politi- cal and municipal elections take place. Arg. Fr. Merc. Law, 566.

5e apparatus — Not carried into the 5th edition (1979).

## MAISON DE DIEU.

Fr. A hospital; an almshouse; a monastery. St. 39 Eliz. c. 5. Literally, “bouse of God.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 25:40, KJV]**

Inasmuch as ye have done it unto one of the least of these my brethren, ye have done it unto me.

Why: The almshouse and hospital's charter: service rendered to the least.

## MAIBTER.

An old form, of “master.”

5e apparatus — Not carried into the 5th edition (1979).

## MAISTTRA.

A house, mansion, or farm. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MAITRE.

Fr. In ‘French maritime law. Master ; • the master or captain of a vessel. Ord. Mar. liv. 2, tit. 1, art L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## MAJESTAS.

Lat. In Roman law. The majesty, sovereign, authority, or supreme prerogative of the state, or prince. Also a. shorter form of the expression "crimen ma- jestatis," or “ crimen Usuw majestatis" an offense against sovereignty, or against the safety or organic life of the Roman people ; i. «., high treason.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined]**

The Roman crimen majestatis — 'an offense against sovereignty... i.e., high treason' — is one of the few offenses the American Constitution itself defines, limiting treason to levying war against the United States or adhering to their enemies.

Why: The entry defines high treason as the offense against sovereignty and the people's organic life. Article III, § 3 is the American law of that same offense-category: 'Treason against the United States, shall consist on...

**[Scripture] — Scripture**

**[Deuteronomy 17:12, KJV]**

And the man that will do presumptuously, and will not hearken unto the priest that standeth to minister there before the LORD thy God, or unto the judge, even that man shall die: and thou shalt put away the evil from Israel.

Why: Defiance of constituted authority as a capital offense — the crime against sovereignty. BORDERLINE red-letter: code form — flag left off.

## MAJESTY.

Royal dignity. A term used of kings and emperors as a title of honor.

5e apparatus — Carried into the 5th edition (1979).

## MAJOR.

A person of full age ;. one who is no longer a minor; one who has attained the management of his own concerns nnd the enjoyment of his civic rights.

In military law. The officer next in rank above a captain.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 13:11, KJV]**

When I was a child, I spake as a child, I understood as a child, I thought as a child: but when I became a man, I put away childish things.

Why: The passage to full age and the management of one's own concerns, stated verbatim. Paul's words, not deity speech.

## MAJOR ANNUS.

The greater year ; the bissextile year, consisting of 366 days. Bract. fo>. 3596.

5e apparatus — Not carried into the 5th edition (1979).

## MAJOR GENERAL.

In military law. An officer next In rank above a brigadier

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general, and next below a lieutenant general, and who usually commands a division or an army corps.

Major hsereditas venit unicuiqne Ros- trum a jure et legibus quam a parenti- bus. 2 Inst 56. A greater inheritance comes to every one of us from right and the laws than from parents.

Major numeral in se continet mi- norem. Bract, fol. 16. The greater number contains in Itself the less.

5e apparatus — Carried into the 5th edition (1979).

## MAJORA REGALIA.

The king’s dig- nity, power, and royal prerogative, as op- posed to his revenue, which is comprised in the minora regalia. 2 Steph. Comm. 475; 1 Bl. Comm. 240.

Majore poena affectus quam legibus statute est, non est inf amis. One affect- ed with a greater punishment than is pro- vided by law Is not infamous. 4 Inst. 66.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 8:15, KJV]**

By me kings reign, and princes decree justice.

Why: The king's dignity, power, and royal prerogative held from divine Wisdom. BORDERLINE red-letter: the speaker is Wisdom personified — not clearly the deity — so per the doubt rule the flag stays off.

## MAJORES.

In Roman law and gen- ealogical tables. The male ascendants be- yond the sixth degree.

In old English law. Greater persons; persons of higher condition or estate.

Majori tumma minor inest. In the

greater sum the less is included. 2 Kent, Comm. 618 ; Story, Ag. j 172.

5e apparatus — Not carried into the 5th edition (1979).

## MAJORITY.

Full age ; the age at which, by law, a person is entitled to the manage- ment of his own affairs and to the enjoyment of civic rights. The opposite of minority. Also the status of a person who is a major in age.

In the law of elections, majority signi- fies the greater number of votes. When there are only two candidates, he who re- ceives the greater number of the votes cast is said to have a majority; when there are more than two competitors for the same office, the person who receives the greatest number of votes has a plurality, but he has not a majority unless he receives a greater number of votes than those cast for all his competitors combined.

In military affairs, majority denotes the rank and commission of a major.

Majus dignum trahit ad se minus dignum. The more worthy draws to itself the less worthy. Co. Litt. 43, 3556; Bract fol. 175 ; Noy, .Max. p„ 0, max. 18.

5e apparatus — Carried into the 5th edition (1979).

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## MAJUS JUS.

In old practice. Greater right or more right. A plea in the old real actions. 1 Reeve, Eng. Law, 476. it a jus jus mcrum, more mere right Bract, fol. 31-

MAKE. 1. To cause to exist; to form, fashion, or produce; to do, perform, or execute; as to make an issue, to make oath, to make a presentment

2. To do in form of law ; to perform with due formalities ; to execute in legnl form ; as to make answer, to make a return.

3. To execute as one's act or obligation; to prepare and sign; to sign, execute, and deliver; as to make a conveyance, to mnke a note.

4. To conclude, determine upon, agree to, or execute ; as to make a contract.

6. To cause to happen by one’s neglect or omission ; as to make default.

6. To make acquisition of; to procure; to collect ; as to make the money on an exe- cution.

7. To have authority or Influence ; to sup- port or sustain; as in the phrase, “This precedent makes for the plaintiff.”

—Make an assignment. To transfer one’s property to an assignee for the benefit of one’s creditors.— Make an award. To form and publish a judgment on the facts. Hoff v. Tay- lor, 5 N. J. Daw, 833.— Make a contract. To agree upon, and conclude or adopt, a contract, In case of a written contract, to reduce it to writing, execute it in due form, and deliver it as binding.— Make default. To fail or be wanting in some legal duty; particularly, to omit the entering of an appearance when duly summoned in an action at law or other judi- cial proceeding, to neglect to obey the com- mand of a subpoena, etc. — Make one’s faith. A Scotch phrase, equivalent to the old English phrase, “to make one’s law.”

5e apparatus — Not carried into the 5th edition (1979).

## MAKER.

One who makes, frames, or ordains ; as a "law-maker." One who makes or executes; as the maker of a promissory note. See Aud v. Magruder, 10 Cal. 290; Sawyers v. Campbell, 107 Iowa, 397, 78 N.

W. 56.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 4:12, KJV]**

There is one lawgiver, who is able to save and to destroy: who art thou that judgest another?

Why: The entry names the law-maker among its senses; the verse names the one Lawgiver. James's words, not deity speech.

## MAKING LAW.

In old practice. The formality of denying a plaintiff’s charge, under oath, In open court, with compurga- tors. One of the ancient methods of trial, frequently, though inaccurately, termed “waging law," or “wager of law." 3 Bl. Comm. 341.

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5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The ancient trial by oath — the wager of law — rests on this doctrine: the oath as the end of strife. Epistle words, not deity speech.

## MAE.

A prefix meaning bad, wrong, fraudulent ; as maladministration, malprac- tice, malversation, etc.

5e apparatus — Not carried into the 5th edition (1979).

## MAE GREE.

L. Fr. Against the will; without the consent. Hence the single word “malgre,” and more modern “maugre,” (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## MAE-TOETE.

Fr. In old French law. A term said to have arisen from the usurious gains of the Jews and Lombards in their management of the public revenue. Steph. Lect 372.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The usurious gains the entry names, forbidden — the statute-territory. BORDERLINE red-letter: code form — flag left off.

## MAEA.

Lat. Bad ; evil ; wrongful.

—Mala fide*. Bad faith. The opposite of bona fides, (q. v.) Mali fide, in bad faith. Make fidei possessor, a possessor in bad faith.

Mackeld. Rom. Law, f 297. — Mala In »e. Wrongs in themselves ; acts morally wrong ; offenses against conscience. 1 Bl. Comm. 57, 58 ; 4 Bl. Comm. 8 ; Com. v. Adams, 114 Mass. 323, 19 Am. Rep. 302; Turner v. Mer- chants’ Bank. 126 Ala. 397, 28 South. 469.— Mala praxis. Malpractice ; unskillful man- agement or treatment. Particularly applied to the neglect or unskillful management of a physician, surgeon, or apothecary. 3 Bl. Comm. 122.— Mala prohibits. Prohibited wrongs or offenses ; acts which are made offenses by pos- itive laws, and prohibited as such. 1 Bl. Comm. 07, 58; 4 Bl. Comm. 8.

Mala Krammatioa non vitiat ohartam. Sod in expositione instrnxnentornm mala Krammatioa

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quoad fieri poaait evitanda eat. Bad grammar does not vitiate a deed. But In the exposition of instruments, bad grammar, as far as It can be done, is to be avoided. 6 Coke, 39; Broom, Max. 686.

5e apparatus — Not carried into the 5th edition (1979).

## MALADMINISTRATION.

This term Is used. In the law-books, Interchangeably with miff-administration, and both words mean “wrong administration.” Mlnkler v. State, 14 Neb. 183, 15 N. W. 331.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 4:2, KJV]**

Moreover it is required in stewards, that a man be found faithful.

Why: Wrong administration judged by the stewardship standard: faithfulness required. Paul's words, not deity speech.

**[Hip-hop] — Hip-hop**

**[YG feat. Nipsey Hussle, 'FDT', 2016]**

Lyric: "Fuck Donald Trump, yeah / Fuck Donald Trump, yeah." Black's MALADMINISTRATION is "wrong administration"; the track is a direct, on-record hip-hop denunciation of a sitting administration.

Why: Genuine: the song's entire subject is the wrongness of an administration — maladministration as protested by the governed. Verbatim-certain chorus.

## MAEANDRINTTS.

In old English law. A thief or pirate. Wals. 338.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:1, KJV]**

Verily, verily, I say unto you, He that entereth not by the door into the sheepfold, but climbeth up some other way, the same is a thief and a robber.

Why: The thief and robber named in the very terms of the entry.

## MAEARY.

In Hindu law. Judicial ; be- longing to a judge or magistrate.

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## MAEBERGE.

A hill where the people assembled at a court, like the English assiz- es ; which by the Scotch and Irish were called “parley hills.” Du Cange.

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## MAEGONNA.

In Hindu law. A treasury or store-house.

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## MAEE.

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Of the masculine sex ; of the sex that begets young.

TWAT.T, CREDITTJS. In old English law. Unfavorably thought of; in bad repute or credit. Bract fols. 11®, 154.

Mai edicts eat expoaitio quae corrum- pit textum. That is a cursed interpreta- tion which corrupts the text. 4 Coke, 35a; Broom. Max. 622.

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**[Scripture] — Scripture**

**[Genesis 5:2, KJV]**

Male and female created he them; and blessed them, and called their name Adam, in the day when they were created.

Why: The masculine sex named at the creation. Narrative, not deity speech.

## MAEEDICTION.

A curse, which was anciently annexed to donations of lands made to churches or religious houses, against those who should violate their rights. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 27:26, KJV]**

Cursed be he that confirmeth not all the words of this law to do them.

Why: The covenant curse annexed against violators — the same legal form as the entry's curse against violators of church rights. Moses' words, not deity speech.

## MAEEE ACTION.

A crime; an offense.

5e apparatus — Not carried into the 5th edition (1979).

## MAEEF ACTOR.

He who is guilty, or has been convicted, of some crime or offense.

Maleficia. non debent remanere im- p unite; et Impunitaa .continuum af- fectum tribuit delinquent!, 4 Coke, 45. Evil deeds ought not to remain unpunished; aud impunity affords continual incitement to the delinquent.

Malefloia propositi* dUtln(nnatnr.

Jenk. Cent. 280. Evil deeds are distinguish- ed from evil purposes, or by their purposes.

5e apparatus — Not carried into the 5th edition (1979).

## MALEFICITXM.

In the civil law. Waste; damage; tort; injury. Dig. 5, 18, 1.

MALESON, or MALISON. A curse.

MALESWORN, or MAISWOKK. For- sworn. Cowell.

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## MALFEASANCE.

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The wrongful or un- just doing of some act which the doer has no right to perform, or which he has stipulated by contract not to do. It differs from “mis- feasance” and “non-feasance,” (which titles see.) See 1 Chit Pr. 9; 1 Chit Pl. 134; Dudley v. Flemlngsburg, 115 Ky. 5, 72 S. W. 327, 60 L. R. A. 575, 103 Am. St. Rep. 253; Colte v. Lynes, 33 Conn. 115 ; Bell v. Josse- lyn, 3 Gray (Mass.) 311, 63 Am. Dec. 741.

5e apparatus — Not carried into the 5th edition (1979).

## MALFETRIA.

In Spanish law. Of- fense. White, New Recop. b. 2, tit 19, c.

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5e apparatus — Not carried into the 5th edition (1979).

## MALICE.

In criminal law. In Its

legal sense, this word does not simply mean ill will against a person, but signifies a wrongful act done Intentionally, without just cause or excuse. Bromage v. Prosser, 4 Barn. & C. 255.

A conscious violation of the law (or the prompting of the mind to commit it) which operates to the prejudice of another person.

About as clear, comprehensive, and correct a definition as the authorities afford Is that “malice Is a condition of the mind which shows a heart regardless of social duty and fatally bent on mischief, the existence of which Is inferred from acts committed or words spoken." Harris v. State, 8 Tex. App. 109.

“Malice,” in its common acceptation, means ill will towards some person. In its legal sense, it applies to a wrongful act done inten- tionally, without legal justification or excuse. Dunn V. 'Hall, 1 Ind. 344.

A- man ' may do an act willfully, and yet be free of malice. But he cannot do an act mali- ciously without at the same time doing it willfully. The malicious doing of an act in- dudes'tha. willful' doing of it. Malice includes intent ,# nd will. State v. Robbins, 66 Me. 328.

For other definitions see Shannon v. Jones, 76 Tex. 141,' 13 S. W. 477; Williams v. Wil- liams; 20 Colo. 51. 37 Pac. 614 ; Smith v. Railroad Co., 87 Md. 48. 38 Atl. 1072; In re Freche (D. C.) 109 Fed. 621 ; Craft v. State. 3 Kan. 486: Lewis v. Chapman. 16 N. Y. 369; State v. Avery. 113 Mo. 475. 21 S. W. 193; State v. Witt, 34 Kan. 488, 8 Pac. 769; State v. Walker. 9 Houst. (Del.) 404, 33 Atl. 227 ; Cotton v. State. 32 Tex. 614 ; Com. v. Chance. 174 Mass. 245, 54 N. E. 551, 75 Am. St. Rep. 306.

In the law of libel and slander. An

evil Intent or motive arising from spite or 111 will ; personal hatred or 111 will : culpable recklessness or a willful and wanton disre- gard of the rights and interests of the person defamed. McDonald v. Brown, 23 R. I. 546, 51 Atl. 213, 58 L. R. A. 768, 91 Am. St Rep. 659; Hearne v. De Young, 132 CaL 357, 64 Pac. 576; Cherry v. Des Moines Leader, 114 Iowa, 298, 86 N. W. 323, 54

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L. R. A. 855, 89 Am. St Rep. 365 ; MInter v. Bradstreet Co., 174 Mo. 444, 73 S. W. 668.

— Actual malice. Express malice, or malice in fact. Gee v. Culver, 13 Or. 598. 11 Pac. 302. — Constructive malice. Implied malice; malice inferred from acts; malice imputed by. law ; malice which is not shown by direct proof of an intention to do injury, (express malice,) but which is inferentially established by the necessarily injurious results of the acts shown to have been committed. State v. Har- rigan, 9 Houst (Del.)- 309, 31 Atl. 1052; Hogan v. State, 36 Wis. 238; Caldwell v. Raymond, 2 Abb. Prac. (N. Y.) 196.— Express malice. Actual malice ; malice in fact ; a deliberate intention to commit an injury, evi- denced by external circumstances. Sparf v.

C. S„ 150 U. S. 81, 15 Sup. Ct. 273, 39 L. Eld. 343: Farrer v. State, 42 Tex. 271; Singleton v. State, 1 Tex. App. 507 ; Jones v. State, 29 Ga. 594 ; Wynne v. Parsons, 57 Conn. 73. 17 Atl. 362; Howard v. Sexton. 4 N. Y. 161; Ilerbener v. Crossan, 4 Pennewill (Del.) 38, 55 Atl. 224. — General malice. General mal- ice is wickedness, a disposition to do wrong, a “black and diabolical heart, regardless of social duty and fatally bent on mischief.” Neal v. Nelson. 117 N. C. 393, 23 S. E. 428. 53 Am. St. Bep. 590: Brooks v. Jones, 33 N.

C. 260.— Implied malice. Malice inferred by legal reasoning and necessary deduction from the ret gestw or the conduct of the party. Malice inferred from any deliberate cruel act committed by one person against another, how- ever sudden. Whart. Horn. 38. Wbat la called “general malice” is often thus inferred. Sparf v. U. S.. 156 U. S. 61, 15 Sup. Ct. 273, 39 L. Ed. 343; Hotema v. D. S.. 186 U. S. 413, 22 Sup. Ct. 895, 46 L. Ed. 1225 ; Dairy v. People, 10 N. Y. 120; State v. Mason. 64

S. C. 240. 32 S. E. 357 ; State v. Neal, 37 Me. 469; State v. Harrigan, 9 Houst. (Del.) 369, 3l Atl. 1052. — Legal malice. An expression used as the equivalent of “constructive malice," or “malice in law.” Humphries v. Parker, 52 Me. 502. — Malice aforethought. In the definition of “murder,” malice aforethought ex- ists where the person doing the act which caus- es death has an intention to cause death or grievous bodily harm to any person, (whether the -person jB actually killed or not,) or to com- mit any felony whatever, or has the knowledge that the act will probably cause the death of or grievous bodily barm to some person, al- though he does not desire it. or even wishes that it may not be caused. Steph. Crim. Dig. 144 ; 1 Russ. Crimes, 641. The words “malice aforethought” long ago acquired in law a set- tled meaning, Bomewhat different from the popular one. In their legal sense they do not import an actual intention to kill the deceased. The idea is not spite or malevolence to the deceased in particular, but evil design in gen- eral, the dictate of a wicked, depraved, and malignant heart ; not premeditated personal hatred or revenge towards the person killed, but that kind of unlawful purpose which, if persevered in, must produce mischief. State v. Pike, 49 N. H. 399. 6 Am. Rep. 533. And see Thiede v. Utah, 159 U. S. 510, 16 Sup. Ct. 62. 40 L. Ed. 237 ; State v. Fiske, 63 Conn. 388. 28 Atl. 572; Nye v. People. 35 Mich. 19; People v. Borgetto, 99 Mich. 330, 58 ' N. W. 328; Darrv v. People, 10 N. Y.. 120: Allen v.

U. S.. 164 U. S. 492. 17 Sup. Ct. 154. 41 L. Ed. 528; Kota v. People, 136 111. 655, 27 N. K. 53; Hogan v. State, 36 Wis. 242. — Malioe in fact. Express or actual malice. Railwny Co. v.

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Behee, 2 Tex. Civ. App. 107, 21 S. W. 384;

Hotchkiss ▼. Porter, 30 Conn. 414. — Malloe In law. Implied, inferred, or legal malice. See Smith v. Rodecap, 5 Ind. App. 78. 81 N. E. 479: Bacon v. Railroad Co., 66 Mich. 168, 33

N. W. 181. — Malice prepense. Malice afore- thought ; deliberate, predetermined malice. 2 Kolle, 461 . — Particular mallee. Malice di- rected agairst a particular individual ; ill will : a grudge ; a desire to be revenged on a par- ticular person. Brooks v. Jones. 33 N. C. 261; State v. Long 117 N. C. 791. 23 S. E. 431.— Preconceived malice. Malice prepense or aforethought. See State v. Ueidell. 9 Houst. (Del.) 470, 14 Atl. 550.— Premeditated mal- ice. An intention to kill unlawfully, deliber- ately formed in the mind bb the result of a de- termination meditated upon and fixed before the act. State v. Gin Pon, 16 Wash. 425, 47 Pac. 961; Milton v. State. 6 Neb. 143; State v. Rutten, 13 Wash. 211, 43 Pac. 30.— Special malice. Particular or personal malice ; that is, hatred, ill will, or a vindictive disposition against a particular individual. — Universal mallee. By this term is not meant a malicious purpose to take the life of all persons, but it is that depravity of the human heart which determines to take life upon slight or insuffi- cient provocation, without knowing or caring who may be the victim. Mitchell v. State, 60 Ala. 30.

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**[Scripture] — Scripture**

**[1 John 3:12, KJV]**

Not as Cain, who was of that wicked one, and slew his brother. And wherefore slew he him? Because his own works were evil, and his brother's righteous.

Why: The wrongful act done intentionally without just cause, shown in the archetypal case of malice. Epistle words, not deity speech.

## MALICIOUS.

Evincing malice; done with malice and an evil design ; willful.

—Malicious abandonment. In criminal law. The desertion of a wife or husband with- out just cause. — Malicious abuse of process.

Hie malicious misuse or misapplication of pro- cess to accomplish a purpose not warranted or commanded by tbe writ ; the malicious perver- sion of a regularly issued process, whereby a re- sult not lawfully or properly obtained on a writ la secured ; not including cases where tlie pro- cess was procured maliciously but not abused or misused after its issuance. Bartlett v. Christhilf, 69 Md. 219, 14 Atl. 521 ; Mayer v. Walter, 64 Pa, 283; Humphreys v. Sutcliffe, 192 Pa. 336, 43 Atl. 954, 73 Am. St. Rep. 819; Kline v. Hibbard. 80 Hun, 50, 29 N. Y. Supp. 807. — Malicious not. A wrongful act inten- tionally done without legal justification or ex- cuse; au unlawful act done wilfully or purpose- ly to Injure another. Bowers v. State. 24 Tex. App. 542, 7 S. W. 247, 5 Am. St. Rep. 901; Payne v. Western & A. R. Co., 13 Lea (Tenn.) 526, 49 Am. Rep. 666: Brandt v. Morning Journal Ass'n. 81 App. Div. 183, 80 N. Y. Supu. 1002. — Malicious arrest. An arrest made willfully aud without probable cause, hut in the course of a regular proceeding.— Malicious injury. An injury committed against a per- son at the prompting of malice or hatred to- wards him, or done spitefully or

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wantonly. State v. Huegin. 110 Wis. 189. 85 N. W. 1046, 62 L. R. A. 700; Wing v. Wing, 66 Me. 62, 22 Am. Rep. 548.— Malicious mischief. A term applied to the willful destruction of per- sonal property, from actual ill will or resent- ment towards its owner or possessor. People v. Petheram. 64 Mich. 252. 31 N. W. 188; First Nat. Bank v. Burkett, 101 111. 394, 40 Am. Rep. 209; State v. Robinson, 20 N. C. 130, 32 Am. Dec. 661 ; Thomas v. State. 30 Ark. 435. Ma- licious mischief or damage is n species of in- jury to private property, which the law con- aiders as a public crime. This is such as is done, not animo furandi, or with an intent of gaining by another's loss, but either out of a spirit of wanton cruelty or wicked revenge. In this latter light it bears a near relation to the crime of arson, for, as that affects the habita- tion, so does this the property, of individuals; and therefore any damage arising from this mischievous disposition, though only a trespass at the common law, is now, by several statutes, made severely penal. Jacob. — Malicious prosecution. A judicial proceeding instituted against a person out of the prosecutor’s malice and ill will, with the intention of injuring him, without probable cause to sustain It, the pro- cess and proceedings being regular and formal, but not justified by tbe facts. For this injury an action on the case lies, called tbe “action of malicious prosecution.” Hicks v. Brantley, 102 Ga. 264. 29 S. E. 459: Eggett v. Alien, 119 Wis. 625, 96 N. W. 803; Harpham v. Whitney, 77 111. 38: Lauzon v. Charroux, 18 R. I. 467, 28 Atl. 975; Friable v. Morris, 75 Conn. 637, 55 Atl. 9.— Malicious trespass. Tbe act of one who maliciously or mischievously injures or causes to be injured any property of another or any public property. State v. McKee, 109 Ind. 497, 10 N. E. 405 ; Hannel v. State, 4 Ind. App. 485, 30 N. E. 1118.

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5e apparatus — Not carried into the 5th edition (1979).

## MALIGN ABE.

To malign or dander; also to malm.

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## MALINGER.

To feign sickness or any physical disablement or mental lapse or de- rangement, especially for the purpose of escaping the performance of a task, duty, or work.

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## MALITIA.

Lat Actual evil design; ex- press malice.

— Malitia praeogitata. Malice aforethought,

Malitia est acida) eat mall animi af- feetua. Malice is sour ; it is the quality of a bad mind. 2 BulsL 49.

Malitia supplet atatem. Malice sup- plies [the want of] age. Dyer, 1046; Broom, Max. 316.

Mailt 11a homluum est obviandum. Tbe

wicked or malicious designs of men must be thwarted. 4 Coke, 156.

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## MAUCUM.

• In old European law. A court of the higher kind In which the more important business of the county was dis- patched by the count or earl. Spelman. A public national assembly.

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## MALO ANIMO.

Lat With an evil mind; with a bnd purpose or wrongful In- tention ; with malice. ...

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## MALO ORATO.

Lat In spite.; , unwill- ingly.

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## MALO SENSU.

Lat. In jaiPqyri ^seifse

or meaning; with an evil signification.

vtrV --

**[TEXT INCOMPLETE — scan limitation]**

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## MALPRACTICE.

As applied to physi- cians and surgeons, this term means, general- ly, professional misconduct towards a pa- tient which Is considered reprehensible either because immoral in Itself or because con- trary to law or expressly forbidden by law. In a more specific sense, It means bad, wrong, or injudicious treatment of a patient, pro- fessionally and In respect to the particular disease or injury, resulting In Injury, un- necessary suffering, or death to the patient.

and proceeding from ignorance, carelessness, want of proper professional skill, disregard of established rules or principles, neglect, or a malicious or criminal Intent. See Iiodgers v. Kline, 50 Miss. 816, 31 Am. Rep. 389; Tucker v. Gillette, 22 Ohio Cir. Ct. R. 669; Abbott v. Mayfield, 8 Kan. App. 387, 56 Pac. 327; Hibbard v. Thompson, 109 Mass. 288. The term is occasionally applied to lawyers, and then means generally any evil practice in a professional capacity, but rather with reference to the court and its practice and process than to the client See In re Baum, 55 Hun, Oil, 8 N. Y. Supp. 771; In re Silkman, 88 App. Dlv. 102, 84 N. Y. Supp. 1025 ; CkAvley v. O'Connell, 174 Mass. 253, 54 N. E. 558.

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## MALT.

A substance produced from bar- ley or other grain by a process of steeping in water until germination begins and then drying in a kiln, thus converting the starch into saccharine matter. See Hollender v. Magone (C. C.) 38 Fed. 915 ; U. S. v. Cohn, 2 Ind. T. 474, 52 S. W.

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38.

—Molt liquor. A general term including all alcoholic beverages prepared essentially by the fermentation of an infusion of malt (as distin- guished from such liquors as are produced by the process of distillation), and particularly such beverages as are made from malt and hops, like beer. ale. and porter. See Allred v. State. 89 Ala. 112, 8 South. 56; State v. Gill, 89 Minn. 502, 95 N. W. 449; U. S. v. Ducournau <C. C.) 54 Fed. 138; State v. Stapp, 2!) Iowa, 552; Sarlls v. U. S., 152 U. S. 570, 14 Sup. Ct. 720, 38 L. Ed. 556. — Malt inulna. A quern or malt-mill.— Malt-shot, or malt-soot. A cer- tain payment for making malt. Somner.— Malt-tax. An excise duty upon malt in Eng- land. 1 BL Comm. 313; 2 Steph. Comm. 581.

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## MALTREATMENT.

In reference to the treatment of his patient by a surgeon, this term signifies Improper or unskillful treat- ment ; it may result either from ignorance, neglect or willfulness; but the word does not necessarily Imply that the conduct of the surgeon, in his treatment of the patient, is either willfully or grossly careless. Com. v. Hackett, 2 Allen (Mass.) 142.

MALUM, n. Lat. In Roman law. A mast ; the mast of a ship. I)lg. 50, 17, 242, pr. Held to be part of the ship. Id.

MALUM, adj. Lat Wrong; evil ; wick- ed reprehensible.

— Malum in se. A wrong in itself; an act or case involving illegality from the very nature of the transaction, upon principles of natural, moral, and public law. Story, Ag. $ 346. An act is said to be malum in sc when it is inher- ently and essentially evil, that is, immoral in its nature and injurious in its consequences, without any regard to the fact of its being no- ticed or punished by the law of the state. Such are most or all of the offenses cognizable at common law, (without the denouncement of a statute;) as murder, larceny, etc.— Malum prohibitum. A wrong prohibited: a thing

which is wrong became prohibited ; an act which is not inherently immoral, but becomes so because ita commission is expressly forbidden by positive law; an act involving an Ille- gality resulting from positive law. Contrasted with malum in se. Story, Ag. f 346.

Malum non habet efficlentem, ted de- fleientem, oauiam. 3 Inst. Proem. Evil has not an efficient, but a deficient, cause.

Malum non preesumltur. Wickedness is not presumed. Branch, Prlnc. ; 4 Coke, 72a.

Malum quo eommunius eo pejus. The

more common an evil Is, the worse it to. Branch, Prlnc.

Main* usus abolendus est. A bad or

Invalid custom to [ought] to be abolished. Litt § 212; Co. Litt. 141; 1 Bl. Comm. 76; Broom, Max. 921.

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## MALVEILLES.

In old English law. Ill will ; crimes and misdemeanors ; malicious practices. Cowell.

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## MALVEIS PROCURORS.

L Fr. Such as used to pack juries, by the nomination of either party in a cause, or other practice. Cowell.

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## MALVEISA.

A warlike engine to batter and beat down walls.

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## MALVERSATION.

In French law. This word to applied to all grave and pun- ishable faults committed In the exercise of a charge or commission, (office,) such as corruption, exaction, concussion, larceny. Merl. Repert.

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**[Scripture] — Scripture**

**[Luke 3:14, KJV]**

And the soldiers likewise demanded of him, saying, And what shall we do? And he said unto them, Do violence to no man, neither accuse any falsely; and be content with your wages.

Why: Exaction and corruption in office rebuked — the office-holder told to be content with his wages. John's words, not deity speech.

## MAN.

A human being. A person of the male sex. A male of the human species above the age of puberty.

In feudal law. A vassal ; a tenant or feudatory. The Anglo-Saxon relation of lord and man was originally purely personal, and founded on mutual contract. 1 Spence, Ch. 37.

—Man of straw. See Men or Straw.

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**[Scripture] — Scripture**

**[Genesis 1:27, KJV]**

So God created man in his own image, in the image of God created he him; male and female created he them.

Why: The human being defined at his origin — the text verbatim, quoted as the compiler's citation. Narrative, not deity speech.

## MANACLES.

Chains for the hands; shackles.

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**[Scripture] — Scripture**

**[Psalm 149:8, KJV]**

To bind their kings with chains, and their nobles with fetters of iron.

Why: Binding with chains and fetters — the shackle's own register. Psalmist's words, not deity speech.

## MANAGE.

To conduct; to carry on ; to direct the concerns of a business or establish- ment. Generally applied to affairs that are somewhat complicated and that Involve skill and judgment. Cora. v. Johnson. 144 Pa. 377, 22 Atl. 703 ; Roberts v. State, 26 Fla. 360. 7 South. 861 ; Ure v. Ure, 185 111. 216. 56 N. E. 1087 ; Youngwortb v. Jewell, 15 Nev. 4S; Watson v. Cleveland, 21 Conn. 541 ; The Silvia, 171 U. S. 462, 19 Sup. Ct. 7, 43 L. Ed. 241.

—Manager. A person chosen or appointed to' manage, direct, or administer the affairs of an- other person or of a corporation or company. Com. v. Johnson, 144 Pa. 377, 22 Atl. 703; Oro Min. A Mill. Co. v. Kaiser, 4 Cola App.

219, 35 Pac. 677; Saunders v. United States Marble Co., 25 Wash. 475, 65 Pac. 782.— Man- agers of a conference. Members of the houses of parliament appointed to represent each house at a conference between the two houses. It is an ancient rule that the number of commons named for a conference should be double those of the lords. May, Pari. Pr. c. 16. — Managing agent. See AGENT.— Manag- ing owner of ship. The managing owner of a ship is one of several co-owners, to whom the others, or those of them who join in the adven- ture, have delegated the management of the ship. He has authority to do all things usual and necessary in the management of the ship and the delivery of the cargo, to enable her to prosecute her voyage and earn freight, with the right to appoint an agent for the purpose. 6

Q. B. Div. 93; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## MANAGIUM.

A mansion-house or dwell- ing-place. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANAS MEDIAE.

Men of a mean con- dition, or of the lowest degree.

5e apparatus — Not carried into the 5th edition (1979).

## MANBOTE.

In Saxon law. A compensa- tion or recompense for homicide, particularly due to the lord for killing his man or vassal, the amount of which was regulated by that of the were.

MANGA, MANGOS, or MANCTTSA. A

square piece of gold coin, commonly valued at thirty pence. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Genesis 9:5, KJV]**

And surely your blood of your lives will I require; at the hand of every beast will I require it, and at the hand of man; at the hand of every man's brother will I require the life of man.

Why: The life taken is required — the requiring of blood that stands behind compensation for homicide due to the lord.

## MANCEPS.

Lat. In Roman law. A pur- chaser ; one who took the article sold in his hand; a formality observed in certain sales. Calvin. A farmer of the public taxes.

5e apparatus — Not carried into the 5th edition (1979).

## MANCHE-PRESENT.

A bribe; a pres- ent from the donor’s own hand.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:8, KJV]**

And thou shalt take no gift: for the gift blindeth the wise, and perverteth the words of the righteous.

Why: The bribe — the gift that blinds — forbidden. BORDERLINE red-letter: code form — flag left off.

## MANGIPARE.

Lat. In Roman law. To sell, alienate, or make over to another; to sell with certain formalities; to sell a per- son; one of the forms observed in the pro- cess of emancipation.

5e apparatus — Not carried into the 5th edition (1979).

## MANCIPATE.

To enslave ; to bind ; to tie.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:2, KJV]**

If thou buy an Hebrew servant, six years he shall serve: and in the seventh he shall go out free for nothing.

Why: Bond-service and its term — the binding the entry defines, stated as law. BORDERLINE red-letter: code form — flag left off.

## MANCIPATIO.

Lat. In Roman law. A certain ceremony or formal process anciently required to be performed, to perfect the sale or conveyance of res mancipi, (land, houses, slaves, horses, or cattle.) The parties were present, (vendor and vendee,) with five wit- nesses and a person called “ libripens ,” who held a balance or scales. A set form of words was repeated on either side, indicative of transfer of ownership, and certain pre- scribed gestures performed, and the vendee then struck the scales with a piece of copper, thereby symbolizing the payment, or weigh- ing out. of the stipulated price.

The ceremony of mancipatio was used, in later times, in one of the forms of making a will.

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The testator acted as vendor, and the heir (or familia: emptor ) as purchaser, the latter symbolically buying the whole estate, or succession, of the former. The ceremony Bl.Law Dict.(2d Ed.)— 48

was also used by a father in making a ficti- tious sale of his son, which sale, when three times repeated, effectuated the emancipation of the son.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ruth 4:9, KJV]**

And Boaz said unto the elders, and unto all the people, Ye are witnesses this day, that I have bought all that was Elimelech's, and all that was Chilion's and Mahlon's, of the hand of Naomi.

Why: The formal witnessed conveyance — elders as witnesses to the sale — the scripture analogue of the ceremonial sale with its witnesses. Boaz's words, not deity speech.

## MANCIPI  RES.

Lat In Roman law. Certain classes of things which could not be aliened or transferred except by means of a certain formal ceremony of conveyance called “mancipatio," (q. v.) These Included land, houses, slaves, horses, and cattle. All other things were called “res nee mancipi .” The distinction was abolished by Justinian. The distinction corresponded as nearly as may be to the early distinction of English law into real and personal property; res mancipi be- ing objects of a military or agricultural char- acter, and res nec mancipi being all other subjects of property. Like personal estate, res nec mancipi were not originally either valuable in se or valued. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## MANCIPITIM.

Lat. In Roman law. The momentary condition in which a filius, etc., might be when in course of emancipation from the potestas, and before that emancipa- tion was absolutely complete. The condition was not like the dominion potestas over slaves, but slaves are frequently called “man- cipia ” in the non-legal Roman authors. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## MANCIPLE.

A clerk of the kitchen, or caterer, especially in colleges. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANOOMTTNAX.

In Spanish law. An obligation is said to be mancomunai when one person assumes the contract or debt of another, and makes himself liable to pay or fulfill it Schm. Civil Law, 120.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 6:2, KJV]**

Bear ye one another's burdens, and so fulfil the law of Christ.

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Why: One person assuming another's burden — the mancomunax obligation to pay or fulfill another's debt. Paul's words, not deity speech.

## MANDAMIENTO.

In Spanish law. Commission ; authority or power of attorney. A contract of good faith, by which one per- son commits to the gratuitous charge of an- other his affairs, a>d the lutter accepts the charge. White, New Recop. b. 2, tit. 12, c. 1.

MANDAMUS, Lat. We command. This is the name of a writ (formerly a high pre- rogative writ) which issues from a court of superior jurisdiction, and is directed to a private or municipal corporation, or any of its officers, or to an executive, administrative, or judicial officer, or to an inferior court, commanding the performance of a particular act therein specified, and belonging to bis or their public, official, or ministerial duty, or directing the restoration of the complainant to rights or privileges of which he has been illegally deprived. See Lahlff v. St. Joseph, etc.. Soc., 76 Conn. 648. 57 Atl. 692. 65 I.. R.

A. 92, 100 Am. St. Rep. 1012; Milster v. Spartanburg, 68 S. C. 243, 47 S. E. 141; State v. Carpenter, 51 Ohio St 83, 37 N. E. 261, 46 Am. St Rep. 556 ; Chicago & N. W. R. Co. v. Crane, 113 U. S. 424, 5 Sup. Ct. 578. 28

L. Ed. 1064 ; Arnold v. Kennebec County, 93 Me. 117, 44 Atl. 364 ; Placard v. State, 148 Ind.

306, 47 N. E. 623; Atlanta t. Wright, 119 Qa. 207, 45 S. E. 994 ; State v. Lewis, 76 Mo. 370; Ex parte Crane, 5 Pet. 190, 8 L. Ed. 92 ; Marbury v. Madison, 1 Cranch, 158, 2 L. Ed. 60; U. S. v. Butterworth, 169 U. S. 600, 18 Sup. Ct 441, 42 L. Ed. 873.

The action of mandamus is one, brought in a court of competent jurisdiction, to obtain an order of such court commanding an inferior tribunal, board, corporation, or person to do or not to do an act the performance or omission of which the law enjoins as a duty resulting from an office, trust, or station. Where discre- tion is left to the inferior tribunal or person, the mandamus can only compel it to act, but cannot control such discretion. Kev. Code Iowa, 1880, § 3373.

Classification. The writ of mandamus is either peremptory or alternative, according as it requires the defendant absolutely to obey its behest, or gives him an opportunity to show cause to the contrary. It is the usual practice to issue the alternative writ first. This commands the defendant to do the par- ticular act, or else to appear and show cause against it at a day named. If he neglects to obey the writ, and either makes, default in his appearance or falls to show good cause against the application, the peremptory man- damus issues, which commands him absolute- ly and without qualification to do the act.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Marbury v. Madison, 5 U.S. (1 Cranch) 137 (1803)]**

The high prerogative writ the entry defines — 'We command,' issuing from a court of superior jurisdiction — is the writ at the center of the landmark American mandamus decision, in which the relator sought mandamus against the Secretary of State.

Why: The entry's whole subject is the writ of mandamus. Marbury v. Madison is the most famous American

instance of that writ: William Marbury's prayer was for mandamus compelling delivery of his commission, and the decisio... [re-homed from 'MANDAMUS' to 'MANDAMIENTO' (OCR headword / parser-merge artifact)]

# U

## UANDAHS.

Lat In the civil law. The employing party in a contract of mandate. One who gives a thing in charge to another; one who requires, requests, or employs an- other to do some act for him. Inst. 3, 27, 1, et seq.

5e apparatus — Not carried into the 5th edition (1979).

# M

## MANDANT.

In French and Scotch law. The employing party in the contract of man- datum, or mandate. Story, Bailm. $ 138.

Hudata licit* recipiunt atrictam lu- te rprctatlonem, sed Ulicllta la tain et ex- tens am. Lawful commands receive a strict interpretation, but unlawful commands a broad and extended one. Bac. Max. reg. 16.

5e apparatus — Not carried into the 5th edition (1979).

## MANDAT AIRE.

Fr. In French law. A person employed by another to do some act for him ; a mandatary.

Mandatarins terminos sibi positos transgredi non potest. A mandatary can- not exceed the limits assigned him. Jenk. Cent 53.

5e apparatus — Not carried into the 5th edition (1979).

## MANDATARY.

He to whom a mandate, charge, or commandment is given; 'also, he that obtains a benefice by mandamus. Briggs v. Spaulding. 141 U. S. 132, 11 Sup. CL 924, 35 L. Ed. 662.

5e apparatus — Not carried into the 5th edition (1979).

## MANDATE.

In practice. A judicial command or precept proceeding from a court or judicial officer, directing the proper officer to enforce a Judgment, sentence, or decree. Seaman v. Clarke, 60 App. Div. 416, 69 N.

7. Sum). 1002; Horton v. State, 63 Neb. 34, 88 N. W. 146.

In the practice of the supreme court of the United States, the mandate is a precept or order issued upon the decision of an appeal or writ of error, directing the action to be taken, or disposition to be made of the case, by the inferior court

In some of the state jurisdictions, the name “mandate” has been substituted for "mandamus" as the formal title of that writ

In contracts. A bailment of property in regard to which the bailee engages to do some’ act without reward. Story, Bailm. { 137.

A mandate is a contract by which a (awful business is committed to the management of another, and by him undertaken to be perform- ed gratuitously. The mandatary is bound to the exercise of slight diligence, and is responsible for gross neglect. The fact that the mandator derives no benefit from the acts of the manda- tary is not of itself evidence of gross negligence. Richardson v. Futrell. 42 Miss. 525; Williams v. Conger, 125 U. S. 397, 8 Sup. Ct 933, 31 L. Ed. 778. A mandate, procuration, or letter of attorney is an act by which one person gives power to another to transact for him and in his name one or several affairs. The mandate may take place in five different manners,— for the interest of the person granting it only; for the joint interest of both parties; for the interest of a third person; for the interest of a third person and that of the party granting it; and, finally, for the interest of the mandatary and a third person. Civ. Code La. arts. 2985, 2986.

Mandates and deposits closely resemble each other; the distinction being that in mandates the care and service are the principal, and the custody the accessory, while in deposits the custody is the principal thing, aud the care and service are merely accessory. Story, Bailm. i 140.

The word may also denote a request or di- rection. Tbus, a check is a mandate by the drawer to his banker to pay the amount to the transferee or holder of the check. 1 Q.

B. Div. 33.

In the civil law. The instructions which the emperor addressed to a public function- ary, and which were rules for his conduct These mandates resembled those of the pro- consuls, the mandate jurisdictio, apd were ordinarily binding on the legates or lieuten- ants of the emperor in the imperial provinces and there they had the authority of th< principal edicts. Sav. Dr. Rom. c. 3, | 24 no. 4.

5e apparatus — Carried into the 5th edition (1979).

## MAHDATO.

In Spanish law. The con- tract of mandate. 'Escriche.

5e apparatus — Not carried into the 5th edition (1979).

## MANDATO, PANES DE.

Loaves of bread given to the poor upon Maundy Thurs day.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 26:11, KJV]**

For ye have the poor always with you; but me ye have not always.

Why: The loaves are Maundy charity; the verse is scripture's own charter of perpetual alms — the poor always with us.

## MANDATOR.

The person employing an- other to perform a mandate.

5e apparatus — Not carried into the 5th edition (1979).

## MANDATORY.

Containing a command ; preceptive ; imperative ; peremptory. A pro- vision in a statute is mandatory when dis- obedience to it will make the act done under

the statute absolutely void ; If the provision Is such that disregard of It will constitute an Irregularity, but one not necessarily fatal. It is said to be directory. So, the mandatory part of a writ is that which commands the person to do the act specified.

—Mandatory injunction. See INJUNCTION.

5e apparatus — Carried into the 5th edition (1979).

## MANDATUM.

Lat In the civil law. The contract of mandate, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## MANDAVI BAIUTO.

(I have com- manded or made my mandate to the bailiff.) In English practice. The return made by a sheriff, where the bailiff of a liberty has the execution of a writ, that he has commanded the bailiff to execute It 1 Tldd, Pr. 309 ; 2 Tidd, Pr. 1025.

5e apparatus — Not carried into the 5th edition (1979).

## MAKGKTEB.

Tenants. Obsolete. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANERA.

In Spanish law. Manner or mode. Las Partidas, pt. 4, tit 4, 1. 2.

5e apparatus — Not carried into the 5th edition (1979).

## MANERIUM.

In old English law. A manor.

Manerium dlcitur n innuendo, secun- dum encellentimm, cedes magma, flxa, et ■ta bills. Co. I.ltt 58. A manor is so

called from manendo, according to its excel- lency, a seat great fixed, and firm.

5e apparatus — Not carried into the 5th edition (1979).

## MANGONARE.

In old English law. To buy in a market

MANGONEEIiUS. A warlike Instrument for casting stones against the walls of a castle. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## MANHOOD.

In feudal law. A term de- noting the ceremony of doing homage by the vassal to his lord. The formula used was, “Devenio veater homo," I become your man. 2 Bl. Comm. 54.

To arrive at manhood means to arrive at twenty-one years of age. Felton v. Billups, 21 N. C. 585.

5e apparatus — Carried into the 5th edition (1979).

## MANIA.

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## MANIFEST.

In maritime law. A sea- letter ; a written document required to be carried by merchant vessels, containing an account of the cargo, with other particulars, for the facility of the customs officers. See New York & Cuba S. S. Co. v. U. S. (I>. C.) 125 Fed. 320.

In evidence. That which Is clear and re- quires no proof ; that which Is notorious.

Manifesta probations non indigent. 7

Coke, 40. Things manifest do not require proof.

5e apparatus — Carried into the 5th edition (1979).

## MANIFESTO.

A formal written decla- ration, promulgated by a prince, or by the

executive authority of a state or nation, pro- claiming its reasons and motiyes for declar- ing a war, or for any other Important inter- national action.

MAWrPtTLTJS . In canon law. A hand- kerchief, which the priest always had in hie- left hand. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## MANKIND.

The race or species of hu- man beings. In law, females, as well as males, may be Included under this term. Forteec. 91.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:26, KJV]**

And God said, Let us make man in our image, after our likeness

Why: Mankind — the race of human beings — at its making, in the divine image. First-person divine speech (Let us make).

## MANNED.

This is a word of large sig- nification, but cannot exceed the subject to which it belongs. The incident cannot be extended beyond Its principal. Wells v.- Bain, 75 Pa. 39, 54, 15 Am. Rep. 563.

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Manner does not necessarily include time. Thus, a statutory requirement that a mining tax shall be "enforced in the same manner” as cer- tain annual taxes need not imply an annual collection. State v. Eureka Consol. Min. tkx- 8 Nev. 15, 29.

Also a thing stolen, in the hand of the thief; a corruption of “mainour," (q. v.)

MANNER AND FORM; MODO ET

FORMA. Formal words Introduced at the conclusion of a traverse. Their object is to put the party whose pleading is traversed not only to the proof that the matter of fact de- nied is, in its general effect, true as alleged, but also that the manner and form in which the fact or facts are set forth are also ca- pable of proof. Brown

5e apparatus — Not carried into the 5th edition (1979).

## MAN NINO.

A day’s work of a man. Cowell. A summoning to court. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## MANNIRE.

To cite any person to ap- pear in court and stand in judgment there. It is different from bannire; tor, though both of them are citations, this is by the adverse party, and that is by the judge. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## MANNOPUS.

In old English law. Goods taken In the hands of an apprehended thief. The same as “mainour," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## MANNUS.

A horse. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANOR.

A house, dwelling, seat, or residence.

In English law, the manor was origi- nally a tract of land granted out by the king to a lord or other great person, in fee. It was otherwise called a “barony” or “lord- ship,” and appendant to it was the right to hold a court, called the “court-baron.” The lands comprised in the manor were divided into tcrrce tencmcntales (tenemental lands or bocland) and tcrrce dominicales, or demesne lands. The former were given by the lord of the manor to his followers or retainers in freehold. The latter were such as he reserved for his own use; but of these part were held by tenants in copyhold, i. c., those holding by a copy of the record in the lord's court; and part, under the name of the “lord’s waste," served for public roads and commons of pasture for the lord and tenants. The tenants, considered in their relation to the court-baron and to each oth- er, were called “pares curice." The word al- so signified

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the franchise of having a manor, with jurisdiction for a court-baron and the right to the rents and services of copyhold- ers.

In American law. A manor is a tract held of a proprietor by a fee-farm rent in money or in kind, and descending to the old- est son of the proprietor, who in New York is called a “patroon.” People v. Van Rensse- laer, 9 N. Y. 291.

— Reputed manor. Whenever the demesne lands and the services become absolutely separated, the manor ceases to be a manor in reality, although it may (and usually does) continue to be a manor in' reputation, and is then called a "reputed manor,” and it is also some- times called a “seigniory in gross.” Brown.

5e apparatus — Carried into the 5th edition (1979).

## MANQUELLER.

In Saxon law. A mur- derer.

MAMREN1L In Scotch law. The serv- ice of a man or vassal. A bond of manrent was an instrument by which a person, in or- der to secure the protection of some power- ful lord, bound himself to such lord for the performance of certain services.

5e apparatus — Not carried into the 5th edition (1979).

## MANSE.

In old English law. A habi- tation or dwelling, generally with land at1 tached. Spelman. ,

A residence or dwelling-house for the par- ish priest ; a parsonage or vicarage house. CowelL Still used in Scotch law in this sense. -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## MANSER.

A bastard. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD.

Why: The legal status of the bastard stated as law. BORDERLINE red-letter: code form — flag left off.

## MANSION.

A dwelling-house or place of residence, including its appurtenant out- buildings. Thompson v. People, 3 Parker, Cr. R. (N. Y.) 214; Comm. v. Pennock, 3 Serg. & R. (Pa.) 199; Armour v. State, 3 Humph. (Tenn.) 385; Devoe v. Comm., 3 Mete. (Mass.) 325.

The mansion includes not only the dwelling- house, but also the outhouses, such as barns, stables, cowhouses, dairy houses, and the like, if they are parcel of the messuage (that is, within the curtilage or protection of the dwell- ing-house) though not under the same roof nor contiguous to it. 2 East, P. C. 492 : State v. Brooks. 4 Conn. 448; Bryant v. State, 60 Ga.

358; Fletcher v. State, 10 I„ea (Tenn.) 339.

In old English law. Residence: dwell- ing.

— Mansion-house . In the law of burglary, etc., any species of dwelling-house. 3 Inst. 64.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[John 14:2, KJV]**

In my Father's house are many mansions: if it were not so, I would have told you. I go to prepare a place for you.

Why: The very word mansions — the dwelling-place the entry defines.

## MANSLAUGHTER.

In criminal law. The unlawful killing of another without

malice, either express or implied ; which may be either voluntarily, upon a sudden heat, or involuntarily, but in the commission of some unlawful act. 1 Hale, P. C. 460 ; 4 Bl. Comm. 191.

Manslaughter is the unlawful killing of a human creature without malice, either ex- press or implied, and without any mixture of deliberation whatever ; which may be vol- untary, upon a sudden beat of passion, or Involuntary, in the commission of an unlaw- ful act, or a lawful act without due caution and circumspection. Code Ga. 1882. { 4324; Pen. Code Cal. § 192. And see Wallace v. U. S„ 162 U. S. 466, 16 Sup. Ct. 859, 40 L. Ed. 1039; Stokes v. State, 18 Ga. 35; Clarke v. State, 117 Ala. 1, .23 South. 671, 67 Am. St Rep. 157; U. S. v. King (C. C.) 34 Fed. 309; People v. Maine, 51 App. Div. 142, 64 N. Y. Supp. 579; High v. State, 26 Tex. App. 545* 10 S. W. 238, 8 Am. St. Rep. 488; State v. Workman, 39 S. C. 151, 17 S. E. 694; State v. Brown, 2 Marv. (Del.) 380, 36 Atl. 458;

U. S. v. Lewis (C. C.) Ill Fed. 632; State v. Zellers, 7 N. J. Law, 243.

The distinction between "manslaughter” and "murder” consists in the following: In the for- mer, though the act which occasions the death be unlawful or likely to be attended with bodily mischief, yet the malice, either express or im- plied, which is the very essence of murder, is presumed to be wanting in manslaughter. 1 East, P. C. 218; Comm. v. Webster, 5 Cush. Mass.) 304, 52 Am. Dec. 711. It also differs rom “murder” in this: that there can be no

accessaries before the fact, there having been no time for premeditation. 1 Hale, P. C. 437 ; 1 Russ, Crimes, 485; 1 Bish. Crim. Law, 678.

— Voluntary manslaughter. In criminal law. Manslaughter committed voluntarily up- on a sudden heat of the passions; as if, upon a sudden quarrel, two persons fight, and one of them kills the other. 4 Bl. Comm. 190, 191.

MANSO, or MANSUM. In old English law. A mansion or house. Spelman.

— Manama capitals. The manor-house or lord’s court. Parocb. Antiq. 150.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

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**[Numbers 35:11, KJV]**

Then ye shall appoint you cities to be cities of refuge for you; that the slayer may flee thither, which killeth any person at unawares.

Why: The killing at unawares — without malice — provided for by the cities of refuge: manslaughter's own legal home. BORDERLINE red-letter: code form — flag left off.

## MANSTEALING.

. A word sometimes used synonymously with “kidnapping,'' (?. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:16, KJV]**

And he that stealeth a man, and selleth him, or if he be found in his hand, he shall surely be put to death.

Why: Manstealing named verbatim — the kidnapping the entry defines. BORDERLINE red-letter: code form — flag left off.

## MANSUETUS.

Lat. Tame; as though accustomed to come to the hand. 2 BL Comm. 391.

5e apparatus — Not carried into the 5th edition (1979).

## MANTEA.

In old records. A long robe or mantle.

5e apparatus — Not carried into the 5th edition (1979).

## MANTHEOFF.

In Saxon law. A horse- stealer.

5e apparatus — Not carried into the 5th edition (1979).

## MANTICULATE.

To pick pockets.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

The canonical literary treatment of this one-line definition — (paraphrase) Fagin trains and deploys his gang of boys, the Artful Dodger among them, as pickpockets across London. (paraphrase)

Why: The legal entry is a single-line definition ('To pick pockets'); the novel is the definitive literary depiction of organized pickpocketing, and the paraphrase names only its uncontroversial content, clearly marked as...

## MAN-TRAPS.

Engines to catch tres- passers, now unlawful unless set In a dwell- ing-house for defense between sunset and sunrise. 24 & 25 Viet. c. 100, { 31.

5e apparatus — Not carried into the 5th edition (1979).

## MANU BREVI.

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Lat. With a short hand. A term used in the civil law, sigulfylng shortly ; directly ; by the shortest course; without circuity.

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## MANU FORTI.

Lat With strong hnud. A term used in old writs of trespass, ilunu forti et cum multitudine gentium, with strong hand and multitude of people. Reg. Orig. 183.

MANU LONGA.. Lat. With a long hand. A term used In the civil law, signifying In- directly or circuitously. Calvin:

5e apparatus — Not carried into the 5th edition (1979).

## MANU OPERA.

Lat. Cattle or imple- ments of husbandry ; also stolen goods tak- en from a thief caught in the fact. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANUAL.

Performed by the hand; used or employed by the hand ; held in the hand. Thus, a distress cannot be made of tools in the “manual occupation” of the debtor.

— Manual delivery. Delivery of personal property sold, donated, mortgaged, etc., by pass- ing it into the “hand” of the purchaser or transferree; that is, by an actual and corporeal change of possession.— Manual gift. The manual gift, that is, the giving of corporeal movable effects, accompanied by a real delivery, is not subject to any formality. Civil Code La. art. 1539.— Manual labor. Labor performed by hand or by the exercise of physical force, with or without the aid of tools and of horses or other beasts of burden, but depending for its effectiveness chiefly upon personal muscular ex- ertion rather than upon skill, intelligence, or adroitness. See Lew Jim v. U. S., 66 Fed. 954, 14 C. C. A. 281; Martin v. Wakefield. 42 Minn. 176, 43 N. W 966. 6 L. R. A. 362; Breauit v. Archambault, 64 Minn. 420, 67 N. W. 348, 58 Am. St. Rep. 545.

MANU ALIA BENEFICIA The dally distributions of meat and drink to the can- ons and other members of cathedral church- es for their present subsistence. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## MANU AXIS OBEDXENTIA.

Sworn obedience or submission upon oath. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MANUCAPTIO.

In old English prac- tice. A writ which lay for a man taken on suspicion of felony, and the like, who could not be admitted to ball by the sheriff, or others having power to let to mainprise. Fitzh. Nat. Brev. 249.

5e apparatus — Not carried into the 5th edition (1979).

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## MANUCAPTORS.

The same as main- pernors, ( q . v.)

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## MANUFACTORY.

A building, the main or principal design or use of which is to be a place for producing articles as products of labor; not merely a place where some- thing may be made by hand or machinery, but what in common understanding is known as a “factory.” Ilalpln v. Insurance Co., 120 N. Y. 73, 23 N. E. 989, 8 L. R. A. 79 ; Schott v. Harvey, 105 Pa. 227, 51 Am. Rep. 201 ; Franklin F. Ins. Co. v. Brock. 57 Pn. 82.

MANUFACTURE, r. The primary meaning of this word is “making with the

hand,” but this definition is too narrow for its present use. Its meaning has expauded as workmanship and art have advanced, so that now nearly all artificial products of hu- man industry, nearly all such materials as have acquired changed conditions or new and specific combinations, whether from the direct action of the human hand, from chem- ical processes devised -and directed by hu- man skill, or by the employment of machin- ery, are now commonly designated as “man- ufactured.” Carlin v. Western Assur. Co., 57 Md. 526, 40 Am. Rep. 440; Evening Jour- nal Ass'n v. State Board of Assessors, 47

N. J. Law, 36, 54 Am. Rep. 114; Attorney General v. Lorman, 59 Mich. 157, 26 N. W. 311, 60 Am. Rep. 287 ; Kidd v. Pearson, 128

U. S. 1, 9 Sup. Ct. 6, 32 L. Ed. 340.

MANUFACTURE, n. In patent law. Any useful product made directly by human labor, or by the aid of machinery directed and controlled by human power, and either from raw materials, or from materials work- ed up into a new form. Also the process by which such products are made or fashioned.

— Domestic manufactures. This term in a state statute is used, generally, of manufactures within its jurisdiction. Com. v. Giltinan, 04 Pa. 100.

5e apparatus — Not carried into the 5th edition (1979).

## MANUFACTURER.

One who is engag- ed in the business of working raw materi- als into wares suitable for use. People v. New York Floating Dry Dock Co., 03 Ilow. Prac. (N. Y.) 453. See Manufactube.

5e apparatus — Carried into the 5th edition (1979).

## MANUFACTURING CORPORATION.

A corporation engaged in the production of some article, thing, or object, by skill or labor, out of raw material, or from matter which has already been subjected to arti- ficial forces, or to. which something has been added to change its natural condition. Peo- ple v. Knickerbocker Ice Co., 99 N. Y. 181, 1 N. E. 669. The term does not include a mining corporation. Byers v. Franklin Coal Co., 106 Mass. 135.

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## MANJTMISSION.

The act of liberating a slave from bondage and giving him free- dom. In a wider sense, releasing or deliv- ering one person from the power or control of another. See Fenwick v. Chapman, 9 Pet. 472, 9 L. Ed. 193; State v. Prall, 1 N.

J. Law, 4.

Manumittere idem eat quod extra man am vel potest^tem ponere. Co. Lltt. 137. To manumit Is the same as to place beyond hand and power.

MANUNG, or MONUNG. In old Eng- lish law. The district within the jurisdic- tion of a reeve, apparently so called from his power to exercise therein one of his chief functions, viz., to exact ( amanian ) all fines.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIII — 'Neither slavery nor involuntary servitude... shall exist within the United States']**

The entry defines manumission as the act of liberating a slave from bondage; the Thirteenth Amendment is the supreme-law instance of that act — the constitutional abolition of slavery and involuntary servitude in the United States.

Why: The entry's substance is liberation from bondage as a legal act. The Thirteenth Amendment performs that act at the constitutional level, ending the status the entry's verb ('liberating a slave') presupposes. Same act,... [re-homed from 'MANUMISSION' to 'MANJTMISSION' (OCR headword / parser-merge artifact)]

**[Scripture] — Scripture**

**[Leviticus 25:10, KJV]**

And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto all the inhabitants thereof: it shall be a jubile unto you; and ye shall return every man unto his possession, and ye shall return every man unto his family.

Why: The proclamation of liberty to all inhabitants — the liberation from bondage the entry defines. BORDERLINE red-letter: code form — flag left off.

## MANURES.

In old English law. A foot of fall and legal measure.

5e apparatus — Not carried into the 5th edition (1979).

## MANUPRETITJM.

Lat In Roman law. The hire or wages of labor; compensation for labor or services performed. See Mack- eld. Rom. Law, f 413. (

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 5:4, KJV]**

Behold, the hire of the labourers who have reaped down your fields, which is of you kept back by fraud, crieth: and the cries of them which have reaped are entered into the ears of the Lord of sabaoth.

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Why: The hire or wages of labor kept back by fraud — the compensation the entry defines. James's words, not deity speech.

## MANDRABLE.

In old English law. Capable of being had or held In hand ; capa- ble of manual occupation; capable of being cultivated; capable of being touched; tan- gible; corporeal. Hale, Anal, § 24.

5e apparatus — Not carried into the 5th edition (1979).

## MAM LIRE.

In old English law. To oc- cupy ; to use or cultivate ; to have In man- ual occupation ; to bestow manual labor upon. Cowell.

MAiniS. Lat; A hand.

In the civil law, this word signified pow- er, control, authority, the right of physical coercion, and was often used as synonymous with' “potcstas."

In old English law, it signified an oath or the person taking an oath; a compur- gator.

—Manns mortna. A dead hand; mortmain. Speiman.

5e apparatus — Not carried into the 5th edition (1979).

## MANUSCRIPT.

A writing; a paper written with the hand; a writing that has not been printed. Parton v. Prang, 18 Fed. Cas. 1273: Leon Loan & Abstract Co. v. Equalization Board, 86 Iowa, 127, 53 N. W. 94, 17 L. R. A. 199, 41 Am. St Rep. 480.

5e apparatus — Carried into the 5th edition (1979).

## MANUTENENTIA.

The old writ of maintenance. Reg. Orlg. 182.

5e apparatus — Not carried into the 5th edition (1979).

## MANWORTH.

In old English law. The price or value of a man’s life or head. Co- well.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:32, KJV]**

If the ox shall push a manservant or a maidservant; he shall give unto their master thirty shekels of silver, and the ox shall be stoned.

Why: The price set on a man's life — the wergild-analogue the entry defines. BORDERLINE red-letter: code form — flag left off.

## MANY.

This term denotes a multitude, not merely a number greater than that de- noted by the word “few.” Louisville & N.

R. Co. v. Hall, 87 Ala. 708, 6 South. 277, 4

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L. R. A. 710, 13 Am. St Rep. 84. But com- pare Hilton Bridge Const Co. v. Foster, 26 Misc. Rep. 338, 57 N. Y. Supp. 140, holding that three persons may be “many.”

5e apparatus — Carried into the 5th edition (1979).

## MAKZIE.

In old Scotch law. Mayhem; mutilation of the body of a person. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## MAP.

A representation of the earth's surface, or of some portion of It, showing the relative position of the parts represent- ed, usually on u flat surface. Webster. “A map is but a transcript of the region which it portrays, narrowed in compass so as to facilitate an understanding of the original.” Banker v. Caldwell, 3 Minn. 103 (Gil. 55).

5e apparatus — Carried into the 5th edition (1979).

## MARA.

In old records. A mere or moor; a lake, pool, or pond; a bog or

marsh that cannot be drained. Cowell ; Blount ; Speiman.

MARAUbm. “A marauder Is defined In the law to toe ‘one who, while employed In the army as a soldier, commits larceny or robbery in the neighborhood of the camp, or while wandering away from the army.’ But in the modern and metaphorical sense of the word, as now sometimes used In common speech, it seems to be applied to a class of persons who are not a part of any regular army, and are not answerable to any military discipline, but who are mere lawless banditti, engaged In plundering, robbery, murder, and all conceivable crimes.” Curry v. Collins, 87 Mo. 328.

5e apparatus — Not carried into the 5th edition (1979).

## M ARC-BANCO.

The name of a piece of money formerly coined at Hamburg. Its value was thirty-five cents.

5e apparatus — Not carried into the 5th edition (1979).

## MARC A.

A mark ; a coin of the value of 13s. 4d. Speiman.

5e apparatus — Not carried into the 5th edition (1979).

## MARCATU8.

The rent of a mark by the year anciently reserved In leases, etc.

5e apparatus — Not carried into the 5th edition (1979).

## MARCH.

In Scotch law. A boundary line or border. Bell. The word Is also used. In composition; as march-dike, march-stone.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: The boundary-line protected by law — the march's own legal sanctity. BORDERLINE red-letter: code form — flag left off.

## MARCHANDI8ES  AVARICES.

In

French mercantile law. Damaged goods.

5e apparatus — Not carried into the 5th edition (1979).

## MARCHERS.

In old English law. No- blemen who lived on the marshes of Wales or Scotland, and who, according to Camden, had their private laws, as if they had been petty kings; which were abolished by the statute 27 Hen. VIII. c. 28. Called also “lords marchers.” Cowell.

5e apparatus — Carried into the 5th edition (1979).

## MARCHES.

An old English term for boundaries or frontiers, particularly the boundaries and limits between England and Wales, or between England and Scotland, or the borders of the dominions of the crown, or the boundaries of properties In Scotland Mozley & Whitley.

—Marches, court of. An abolished tribunal in Wales, where plea* of debt or damages, not above the value of *50, were tried and deter- mined. Cro. Car. 384.

5e apparatus — Carried into the 5th edition (1979).

## MARCHETA.

In old Scotch law. A

custom for the lord of a fee to lie the first night with the bride of his tenant. Abol- ished by Malcolm III. Speiman; 2 BT. Comm. 83.

A fine paid by the tenant for the remission of such right, originally a mark or half ■ mark of silver. Speiman.

In old English law. A fine paid for leave to marry, or to bestow a daughter In marriage. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Mel Gibson, Braveheart, 1995]**

The canonical screen staging of the custom this entry describes — (paraphrase) at a Scottish village wedding the English lord claims the right of the first night, to the groom's grief. (paraphrase)

Why: The entry defines marcheta as the custom for the lord of a fee to lie the first night with the bride of his tenant (prima nocte). The film's prima-nocte sequence stages that same custom. Cited as a cinematic staging o...

## MARCHIONESS.

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A dignity In a woman answerable to that of marquis in a man, con- ferred either by creation or by marriage with a marquis. Wharton.

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## MARE.

Lat. The sea.

—Mare cUunm. The sea closed: that Is, not open or free. The title of Selden's great work, intended as an answer to the Mare Lib- erum of Grotius; in which he undertakes to prove the sea to be capable of private dominion. 1 Kent, Comm. 27.— Mare liberum. The sea free. The title of a work written by Grotius against the Portuguese claim to an exclusive trade to the Indies, through the South Atlantic and Indian oceans ; showing that the sea was not capable of private dominion. 1 Kent, Comm. 27.

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**[Scripture] — Scripture**

**[Genesis 1:10, KJV]**

And God called the dry land Earth; and the gathering together of the waters called he Seas: and God saw that it was good.

Why: The sea named at the creation. Narrative, not deity speech.

## MARESCAILCS.

In old English law. A marshal; a master of the stables; an offi- •cer of the exchequer; a military officer of high rank, having powers and duties similar to those of a constable. Du Cange. See Mabshal.

5e apparatus — Not carried into the 5th edition (1979).

## MARESCHAL.

L. Fr. Marshal; a high officer of the royal household. Britt fol. lb.

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## MARETTTJM.

Marshy ground overflow- ed by the sea or great rivers. Co. Litt 5.

MARGIN. 1. The edge or border; the edge of a body of water where it meets the land. As applied to a boundary line of land, the “margin” of a river, creek, or other water-course means the center of the stream. Ex parte Jennings, 6 Cow. (N. Y.) 527, 16 Am. Dec. 447; Varick v. Smith, 9 Paige (N. Y.) 551. But in the case of a lake, bay, or natural pond, the "margin” means the line where land and water meet. Fowler v. Vree- land, 44 N. J. Eq. 268, 14 Atl. 116; Lem- beck v. Andrews, 47 Ohio St. 330, 24 N. E. 686, 8 L. R. A. 578.

2. A sum of money, or its equivalent, placed In the hands of a stockbroker by the principal or person on whose account the purchase is to be made, as a security, to the former against losses to which he may be exposed by a subsequent depression in the market value of the stock. Markham v. Jau- don, 49 Barb. (N. Y.) 468; Sheehy v. Shinn, 103 Cal. 325, 37 Pac. 393: Memphis Broker- age Ass’n v. Cullen, 11 Lea (Tenn.) 77; For- tenbury v. State, 47

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Ark. 188, 1 S. W. 58.

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## MARGIN AX NOTE.

In Scotch law. A note inserted on the margin of a deed, em- bodying either some clause which was omit- ted In transcribing or some change in the agreement of the parties. Bell.

An abstract of a reported case, a summary of the facts, or brief statement of the prin- ciple decided, which is prefixed to the report of the case, sometimes in the margin, is also spoken of by this name.

5e apparatus — Not carried into the 5th edition (1979).

## MARIN ARIES.

An ancient word which signified a mariner or seaman. In England,

marinarivs capitaneus was the admiral or warden of the ports.

5e apparatus — Not carried into the 5th edition (1979).

## MARINE.

Naval; relating or pertaining to the sea ; transacted at sea; doing duty or service on the sea.

This is also a general name for the navy of a kingdom or state; as also the whole economy of naval affairs, or whatever re- spects the building, rigging, arming, equip- ping, navigating, and lighting ships. It com- prehends also the government of naval arma- ments, and the state of all the persons em- ployed therein, whether civil or military. Also one of the marines. Wharton. See Doughten v. Vandever, 5 Del. Ch. 73.

—Marine belt. That portion of the main or open sea, adjacent to the shores of a given country, over which the jurisdiction of its mu- nicipal laws and local authorities extends ; de- fined by international law as extending out three miles from the shore. See The Alexander (D. C.) 60 Fed. 918. — Marine carrier. By stat- utes of several states this term is applied to carriers plying upon the ocean, arms of the sea, the Great Lakes, and other navigable waters within the jurisdiction of the United States. Civ. Code Cal. 1903. g 2087; Rev. & Ann. St. Okl. 1903, I 652; Rev. Codes N. D. 1899, g 4176.— Marine contract. One relating to maritime affairs, shipping, navigation, marine insurance, affreightment, maritime loans, or other business to be done upon the sea or in connection with navigation.— Marine corn*. A body of soldiers enlisted and equipped for service on board vessels of war; also the naval forces of the nation. U. S. v. Dunn, 120 U. S. 249, 7 Sup. Ct. 507, 30 L. Ed. 667.— Marine court in tbe city of New York. A local court of New York having original jurisdiction ' of civil causes, where the action is for nersonal injuries or defamation, and of other civil actions where the damages claimed do not exceed $2,000. It is a court of record. It was originally created as a tribunal for the settlement of causes be- tween seamen.— Marine insurance. See In- subance. — Marine interest. Interest, al- lowed to be stipulated for at an extraordinary rate, for the use and risk of money loaned on respondentia and bottomry bonds.— Marine league. A measure of distance commonly em- ployed at sea, being equal to one-twentieth part of a degree of latitude, or three geographical or nautical miles. See

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Rockland, etc., S. Co., v. Fessenden, 79 Me. 140, 8 Atl. 552.— Marino risk. The perils of the sea; the perils neces- sarily incident to navigation. — Marine Socie- ty. In English law. A charitable institution for the purpose of apprenticing boys to the naval service, etc., incorporated by 12 Geo. III. c. 67.

5e apparatus — Carried into the 5th edition (1979).

## MARINER.

A seaman or sailor; one engaged in navigating vessels upon the sea.

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**[Scripture] — Scripture**

**[Psalm 107:23, KJV]**

They that go down to the sea in ships, that do business in great waters

Why: The seaman's own description — those who do business in great waters. Psalmist's words, not deity speech.

## MARINES.

A body of Infantry soldiers, trained to serve on board of vessels of war when in commission and to fight in naval en- gagements.

Maris et fceminse conjnnetio est de Jure natnrse. 7 Coke, 13. The connection of male and female is by the law of nature.

5e apparatus — Not carried into the 5th edition (1979).

## MARISCHAL.

An officer in Scotland, who. with the lord high constable, possessed a supreme Itinerant jurisdiction in all crimes

committed within a certain space of the court, wherever it might happen to be. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## MARISCTTS.

A marshy or fenny ground. Co. Lltt. 5a.

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# A

## AU.

An obsolete writ for the tenant in f rant-marriage to recover lands, etc., of which he was deforced.

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# M

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## MARITAGIUM.

The portion which is given with a daughter in marriage. Also the power which the lord or guardian in chivalry had of disposing of his infant ward in matrimony.

— Maritagium habere. To have the free dis- posal of an heiress in marriage.

Maritagium est ant liberum ant ser- vitio obligatnm; liberum maritagium di- oitnr nbi donator vnlt quod terra sie data quleta sit et libera ab Omni secu- lar! servitio. Co. Lltt. 21. A marriage portion is either free or bound to service ; it is called “frank-inarringe" when the giver wills that land thus given be exempt from all secular service.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:16-17, KJV]**

And if a man entice a maid that is not betrothed, and lie with her, he shall surely endow her to be his wife. If her father utterly refuse to give her unto him, he shall pay money according to the dowry of virgins.

Why: The dowry — the portion given with the daughter — stated as law. BORDERLINE red-letter: code form — flag left off.

## MARITAL.

Relating to, or connected with, the status of marriage; pertaining to a husband; incident to a husband.

—Marital coercion. Coercion of the wife by the husband.— Marital portion. In Louisi- ana. The name given to that part of a deceas- ed husband’s estate to which the widow is en- titled. Civ. Code La. art. 55; Abercrombie v. Caff ray, 3 Mart. N. S. (La.) 1.— Marital rights. The rights of a husband. The ex- ression is chiefly used to denote the right of a usband to property which his wife was en- titled to during the continuance of the marriage. See Kilburn v. Kilburn, 89 Cal. 40, 20 Pac. 630, 23 Am. St. Rep. 447; McCown v. Owens, 15 Tex. Civ. App. 346, 40 S.*W. 330.

MARITIMA ANGLES!. In old English law. The emolument or revenue coming to the king from the sea, which the sher- iffs anciently collected, but which was after- wards granted to the admiral. Spelman.

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## MARITIMA INCREMENT A.

In old

English law. Marine increases. Lands gain- ed from the sea. Hale, de Jure Mar. pt. 1, c. 4.

5e apparatus — Not carried into the 5th edition (1979).

## MARITIME.

Pertaining to the sea or ocean or the navigation thereof; or to com- merce conducted by navigation of the sea or (in America) of the great lakes and rivers.

It is nearly equivalent to “marine” in many connections and uses; in others, the two words

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are used as quite distinct.

— Maritime cause. A cause of action orig- inating on the high seas, or growing out of a maritime contract. 1 Kent. Comm. 367. et seq. —Maritime oontraet. A contract whose sub- ject-matter has relation to the navigation of the seas or to trade or commerce to be conducted by navigation or to be done upon the sea or in ports. Over such contracts the ad- miralty has concurrent jurisdiction with the common-law courts. Edwards v. Elliott, 21 Wall. 553, 22 L. Ed. 487; Doolittle v. Knobe- loch (D. C.) 39 Fed. 40 ; Holt v. Cummings, 102 Pa. 215, 48 Am. Rep. 199; De Lovio v. Boit, 7 Fed. Cas. 435; Freights of The Kate (D. C.) 63 Fed. 720.— Maritime court. A court exercising jurisdiction in maritime causes; one which possesses the powers and jurisdiction of a court of admiralty.— Maritime interest. An expression equivalent to marine interest, [ q . v.)— Maritime jurisdiction. Jurisdiction in maritime causes; such jurisdiction as be- longs to a court of admiralty on the instance side.— Maritime law. That system of law which particularly relates to commerce and navigation, to business transacted at sea or re- lating to navigation, to ships and shipping, to seamen, to the transportation of persons and property by sea, and to marine affairs generally. The law relating to harbors, ships, and seamen. An important branch of (he commercial law of maritime nations; divided into a variety of- departments, such as those about harbors, prop- erty of ships, duties and rights of masters and seamen, contracts of affreightment, average, salvage, etc. Wharton ; The Lottawanna, 21 Wall. 572. 22 L. Ed. 654; The Unadilla (D. C.) 73 Fed. 351; Jervey v. The Carolina (D. C.) 66 Fed. 1013.— Maritime lien. A lien aris- ing out of damage done by a ship in the course of navigation, as by collision, which attaches to the vessel and freight, and is to be enforced by an action in rem in the admiralty courts. The Unadilla (D. C.) 73 Fed. 351 ; Paxson v. Cunningham, 63 Fed. 134, It C. C. A. Ill; The Underwriter (D. C.) 119 Fed. 715; Ste- phenson v. The Francis (D. C.) 21 Fed. 719. Maritime liens do not include or require pos- session. The word “lien” is used in maritime law not in the strict legal sense in which we understand it in courts of common law. in which case there could be no lien where there was no possession, actual or constructive, but to ex- press. as if by analogy, the nature of claims which neither presuppose nor originate in pos- session. 22 Eng. Law & Eq. 62.— Maritime loan. A contract or agreement by which one, who is the lender, lends to another, who is the borrower, a certain sum of money, upon condi- tion that if the thing upon which the loan has been made should be lost by any peril of the sea, or vis major, the lender shall not be repaid unless what remains shall be equal to the sum borrowed; and if the thing arrive in safety, or in case it shall not have been injured but by its own defects or the fault of the master or mariners, the borrower shall be bound to return the sum borrowed, together with a certain sum agreed upon as the price of the haznrd incurred. Emerig. Mar. Loans, c. 1, s. 2. And see The Draco, 7 Fed. Cas. 1.042.— Maritime rvroflt. A term used by French writers to signify any profit derived from a maritime loan. — Mari- time service. In admiralty law. A service rendered upon the high seas or a navigable river, and which has some relation to commerce or navigation, — some connection with a vessel employed in trade, with her equipment, her preservation, or the preservation of her cargo or crew. Thackarey v. The

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Farmer. 23 Fed. Cas. 877; The Atlantic (D. C.) 53 Fed. 609; Cope v. Vallette Dry-Dock Co. (C. C.) 16 Fed. 925. — Maritime state, in English law. con- sists of the officers and mariners of the British navy, wbo are governed by express and perma- nent laws, or the articles of the navy, estab- lished by act of parliament.— Maritime tort. A tort committed upon the high seas, or upon a navigable river or other navigable water, and hence falling within the jurisdiction of a court of admiralty. The term is never applied to a tort committed upon land, though relating to maritime matters. See The Plymouth, 3 Wall.

MARITtJB

33, 18 L. Ed. 125 ; Holmes v. Oregon A C. Ry. Co. (D. C.) 5 Fed. 77; In re Long Island, etc., Transp. Co. (I). C.) 5 Fed. 606; U. S. v. Bur- lington, etc., Ferry Co. (D. C.) 21 Fed. 336.

5e apparatus — Carried into the 5th edition (1979).

## MABITUS.

Lat. A husband; a mar- ried man. Calvin.

MARK. 1. A character, usually In the form of a cross, made as a substitute for his signature by a person who cannot write, In executing a conveyance or other legal docu- ment. It is commonly made as follows: A third person writes the name of the marks- man, leaving a blank space between the Christian name and surname; In this space the latter traces the mark, or crossed lines, and above the mark Is written “his," (or "her,”) and below It, “mark.”

2. The sign, writing, or ticket put upon manufactured goods to distinguish them from others, appearing thus in the compound, “trade-mark.”

3. A token, evidence, or proof; as in the phrase “a mark of fraud.”

4. A weight used in several parts of Eu- rope, and for several commodities, especially gold and silver. When gold and sliver nre sold by the mark, it is divided Into twenty- four carats.

5. 'A money of accounts in Eugland, and In some other countries a coin. The English mark is two-thirds of a pound sterling, or 13s. 4d. ; and the Scotch mark is of equal value in Scotch money of account. Enc. Amer.

6. In early Teutonic and English law.

A species of village community, being the lowest unit in the political system; one of the forms of the gens or clan, variously known as the “mark,” “gemeinde," "com- mune," or "parish.” Also the land held in common by such a community. The union of several such village communities and their marks, or common lands, forms the next higher political union, the hundred. Freem. Compar. Politics, 110, 117.

7. The word Is sometimes used as another form of "marque," a license of reprisals.

—Semi-mark. Half a mark; a sura of mon- ey which was anciently required to be tendered in a writ of right, the effect of such tender be- ing to put the demandant, in the first instance, upon proof of the seisin as stated in his count ; that is, to prove that the seisin was in the king's reign there stated. Rose. Real Act. 216. — High and low water-mark. See Wateb-Mabk.— Mark banco. See Mabc Banco.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ezekiel 9:4, KJV]**

And the LORD said unto him, Go through the midst of the city, through the midst of Jerusalem, and set a mark upon the foreheads of the men that sigh and that cry for all the abominations that be done in the midst thereof.

Why: For the MARK sub-entry carried inside this headword's body (the mark as a set sign/signature): The mark as a set sign — scripture's own usage of the term.

## MARKUP ENNY.

A penny anciently paid at the town of Maldon by those who had gutters laid or made out of their houses Into the streets. Wharton.

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## MARKET.

A public time and appointed place of buying and selling; also, purchase and sale. Caldwell v. Alton, 33 111. 419, 75 Am. Dec. 282; Taggart v. Detroit, 71 Jlich.

92, 38 N. W. 714; Strickland v. Pennsyl- vania R. Co., 154 Pa. 348, 26 Atl. 431, 21

L. R. A. 224. It differs from the forum, or market of antiquity, which was a public market-place on one side only, or during one part of the' day only, the other sides being occupied by temples,' theaters, courts of Jus- tice, and other public buildings. Wharton.-

The liberty, privilege, or franchise by which a town holds a market, which can only be by royal grant or immemorial usage.

By the term “market” is also understood the demand there Is for any particular arti- cle; as, “the cotton market In Europe is dull.”

—Clerk of tke market. See Clerk. - Market geld. The toll of a market. — Mar- ket overt. In English law. An open and public market. The market-place or spot of ground set apart by custom for the sale of par- ticular goods is, in the country, the only market overt; but in London every shop in which goods are exposed publicly to sale is market overt, for such things only as the owner pro- fesses to trade in. 2 Bl. Comm. 449; Godb. 131 ; 5 Coke, 83. See Fawcett v. Osborn, 32 111. 426, 83 Am. Dec. 278.— Market price. The actual price at which the given commodity is currently sold, or has recently been sold, in the open market, that is. not at a forced sale, but in the usual and ordinary course of trade and competition, between sellers and buyers equally free to bargain, as established by rec- ords of late sales. See Lovejoy v. Michels. 88 Mich. 15, 49 N. W. 901, 13 L. R. A. 770; Sanford v. Peck, 63 Conn. 486, 27 Atl. 1057 ; Douglas v. Merceles, 25 N. J. Eq. 147 ; Par- menter v. Fitzpatrick, 135 N. Y. 190, 31 N. E. 1032. The term also means, when price at the plnce of exportation is in view, the price at which articles are sold and purchased, clear of every charge but such as is laid upon it at the time of sale. Goodwin v. United States, 2 Wash. C. C. 493, Fed. Cas. No. 5,554.— Mar- ket towns. Those towns which are entitled to hold markets. 1 Steph. Comm. (7th Ed.) 130. — Market vahie. The market value of an article or piece of property is

the price which it might be expected to bring if offered for sale in a fair market: not the price which might be obtained on a sale at public auction or a sale forced by the necessities of the owner, but such e. price as would be fixed by negotiation and mutual agreement, after ample time to find a purchaser, as between a vendor who is willing (but not compelled) to sell and a purchaser who desires to buy but is not compelled to take the particular article or piece of property. See Winnipiseogee Lake. etc.. Co. v. Gilford. 67 N.

H. 514. 35 Atl. 945; Muser v. Magone, 155

U. S. 240, 15 Sup. Ct. 77, 39 L. Ed. 135; Esob v. Railroad Co., 72 Wis. 229, 39 N. W. 129; Sharpe v. U. S.. 112 Fed. 89S. 50 C. C. A. 597. 57 L. R. A. 932: Little Rock Junction Ry. v. Woodruff, 49 Ark. 381, 5 S. W. 792. 4 Am. St. Pep. 51; Lowe v. Omaha, 33 Neh. 587. 50 N.

W. 763 ; San Diego Land Co. v. Neale, 78 Cal. 63, 20 Pac. 372. 3 L. R. A. 83.— Market seld, (properly market geld.) In old records. The toll of a market. Cowell.— Public market. A -market which is not only open to the resort of the general public as purchasers, but also available to all who wish to offer their wares for sale, stalls, stands, or places being allotted to those who apply, to the limits of the capacity of the market, on payment of fixed rents or fees. See American Live Stock Commission Co. v. Chicago Live Stock Exchange. 143 111. 210, 32 N. E. 274, 18 L. R. A. 190, 30 Am. St. Rep. 385; State v. Fernandez, 39 La. Ann. 538, 2 South. 233 ; Cincinnati v. Buckingham, 10 Ohio, 257.

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**[Scripture] — Scripture**

**[John 2:16, KJV]**

And said unto them that sold doves, Take these things hence; make not my Father's house an house of merchandise.

Why: The market-place itself — buying and selling at the appointed place — rebuked in the temple.

## MARKETABLE.

Such things as may be sold in the market ; those for which a buyer may be found.

—Marketable title. A “marketable title" to land ia such a title ns a court of equity, when aBked to decree specific performance of the con- tract of sale, will compel the vendee to accept as sufficient. It is said to be not merely a defensible title, but a title which is free from plausible or reasonable objections. Austin v. Bnrnum, 52 Minn. 136, 5.3 N. W. 1132; Vought v. Williams, 46 Hun (N. Y.) 642; Brokaw v. Duffy, 165 N. Y. 391. 59 N. E. 196; Todd v. Union Dime Sav. Inst., 128 N. Y. 636, 28 N.

E. 504.

MARKSMAN ■ In practice and convey- ancing. One who makes bis mnrk ; a person who cannot write, and only makes his mark in executing instruments. Arch. N. Pr. 13; 2 Chit. 92.

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## MARLBRXDGE, STATUTE OF.

An

English statute enacted in 1267 (52 Hen. III.) at Marlbrldge, (now called “Marlbor- ough,”)

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where parliament was then sitting. It related to land tenures, and to procedure, and to unlawful and excessive distresses.

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## MARQUE AND REPRISAL, LET- / TERS OF.

These words, “marque" and “reprisal,” are frequently used as synony- mous, but, taken in their strict etymological sense, the latter signifies a “taking in re- turn ;” the former, the passing the frontiers (marches) in order to such taking. Letters of marque and reprisal are grantable, by the law of nations, whenever the subjects of one state are oppressed and Injured by those of another, and Justice is denied by that state to which the oppressor belongs ; and the par- ty to whom these letters are granted may then seize the bodies or the goods of the sub- jects of the state to which the offender be- longs, until satisfaction be made, wherever they happen to be found. Reprisals are to be granted only In case of a clear and open denial of Justice. At the present day, in consequence partly of treaties and partly of the practice of nations, the making of re- prisals is confined to the seizure of commer- cial property on the high seas by public cruisers, or by private cruisers specially au- thorized thereto. Brown.

MARQUIS, or MARQUESS. In English law. One of the second order of nobility; next in order to a duke.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 11 — Congress may 'grant Letters of Marque and Reprisal']**

The law-of-nations instrument the entry expounds — letters authorizing reprisal when one state's subjects are oppressed by another's — has its American constitutional home in Congress's power to grant letters of marque and reprisal.

Why: The entry defines the instrument and its law-of-nations ground. Article I, § 8, cl. 11 places that instrument in the American constitutional order, vesting the granting power in Congress alongside the powers to declar...

## MARQUIS ATE.

The seigniory of a mar- quis.

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## MARRIAGE.

Marriage, as distinguished from the agreement to marry and from the act of becoming married, is the civil status of one man and one woman united in law for life, for the discharge to each other and the community of the duties legally incum- bent on those whose association is founded on the distinction of sex. 1 Bish. Mar. A

Div. | 3. And see State v. Fry, 4 Mo. 128; Mott v. Mott, 82 Cal. 413, 22 Pac. 1140; Reynolds v. U. S., 98 U. S. 165, 25 L. Ed. 244 ; Maynard v. Hill, 125 U. S. 190, 8 Sup. Ct 723. 31 L. Ed. 654 ; Wade v. Kalbfleisch, 58 N. Y. 284, 17 Am. Rep. 250; State v. Blttick, 103 Mo. 183, 15 S. W. 325, 11 L.

R. A. 587; 23 Am. St Rep. 869; Allen ▼. Allen, 73 Conn. 54, 46 Atl. 242, 19 U &

A. 142, 84 Am. St Rep. 135.

A contract, according to the form pre- scribed by law, by which a man and woman, capable of entering into such contract, mutu- ally engage with each other to live their whole lives together in the state of union which ought to exist between a husband and wife. Shelf. Mar. & Div. 1.

Marriage is a personal relation arising out of a civil contract, to which the consent ofparties capable of making it is necessary. Consent alone will not constitute marriage; it must b® followed by a solemnization, or by a mutual as- sumption of marital rightR, duties, or obliga- tions. Civil Code Cal. § 55.

Marriage is the union of one man and one woman, “so long as they both shall live," to the exclusion of all others, by an obligation which, during that time, the parties cannot of their own volition and act dissolve, but which can be dissolved only by authority of the state. Roche v. Washington, 19 Ind. 53, 81 Am. Dec. 376.

The word also signifies the act, ceremony, or formal proceeding by which persons take each other for husband and wife.

In old English law, marriage is used in the sense of "maritapium," (q. v„) or the feudal right enjoyed by the lord or guardian In chivalry of disposing of his ward In mar- riage.

—Avail of marriage. See that title.— Com- mon-law marriage. See Common Law.— Jactitation of marriage. See Jactitation. —Marriage articles. Articles of agreement between parties contemplating marriage, intend- ed as preliminary to a formal marriage set- tlement. to be drawn after marriage. Ath. Mar. Sett. 92.— Marriage brokage. The act by which a third person, for a consideration, negotiates a marriage between a man and wo- man. The money paid for such services is al- so known by this name. Hellen v. Anderson, 83 111. App. 509; White v. Equitable Nuptial Ben. Union, 76 Ala. 251, 52 Am. Rep. 325. —Marriage ceremony. The form, religious or civil, for the solemnization of a marriage.— Marriage consideration. The consideration furnished by an intended marriage of two per- sons. It is the highest consideration known to the law.— Marriage license. A license or permission granted by public authority to per- sons who intend to intermarry. By statute In some jurisdictions, it is made an essential pre- requisite to the lawful solemnization of the mar- riage.—Marriage-notice book. A book kept, in England, by the registrar, in which applica- tions for and issue of registrar's licenses to mar- ry are recorded.— Marriage portion. Dowry ; a sum of money or other property which is

fiven to or settled on a woman on her marriage, n re Croft. 162 Mass. 22, 37 N. E. 784.— Marriage promise. Betrothal; engagement to intermarry with another. Perry v. Orr, 35

N. J. Law, 296.— Marriage settlement. A written agreement in the nature of a convey- ance, called a- “settlement,” which is made in contemplation of a proposed marriage and in consideration thereof, either by the parties about

marriage:

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to Intermarry, or one of them, or by a parent •or relation on their behalf, by which the title to certain property is settled, i. e„ fixed or lim- ited to a prescribed course of succession ; the object being, usually, to provide for the wife and children. Thus, the estate might be limited to the husband and issue, or to the wife and issue, or to husband and wife for their joint lives, remainder to the survivor for life, re- mainder over to the issue, or otherwise. Such settlements may also be made after marriage, in which case they are called “post-nuptial."— Mixed marriage. A marriage between per- sons of different nationalities; or, more par- ticularly, between persons of different racial origin ; as between a white person and a negro er an Indian.— Morganatic marriage. The lawful and inseparable conjunction of a man, of noble or illustrious birth, with a woman of inferior station, upon condition that neither the wife nor her children shall partake of the titles, arms, or dignity of the husband, or suc- ceed to his inheritance, but be contented with a certain allowed rank assigned to them by the morganatic contract. But since these restric- tions relate only to the rank of the parties and succession to property, without affecting the nature of a matrimonial engagement, it must be considered as a just marriage. The marriage ceremony was regularly performed; the union was indissoluble; the children legitimate. Wharton.— Plural marriage. In general, any bigamous or polygamous union, but particularly, a second or subsequent marriage of a man who already has one wife living, under the system of polygamy as practised by Mormons. See Freil v. Wood, 1 Utah, 105.— Scotch mar- riage. A marriage contracted without any formal solemnization or religious ceremony, by the mere mutual agreement of the parties per verba de praienti in the presence of witnesses, recognized as valid by the Scottish law.

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## MARRIED WOMAN.

A woman who has a husband living and not divorced; a feme covert.

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## MARSHAL.

In old English law. The

title borne by several officers of state and of the law, of whom the most important were the following: (1) The earl-marshal, who presided In the court of chivalry; (2) the marshal of the king's house, or knight-mar- shal, whose special authority was In the king’s palace, to hear causes between mem- bers of the household, and punish faults committed within the verge; (3) the mar- shal of the king’s bench prison, who had the custody of that jail ; (4) the marshal of the exchequer, who had the custody of the king’s debtors; (5) the marshal of the judge of assize, whose duty was to swear In the grand jury.

In American law. An officer pertaining to the organization of the federal judicial system, whose duties are similar to those of a sheriff. He is to "execute the process of the United States courts within the dis- trict for which he is appointed, etc.

Also, in some of the states, this is the name of an officer of police, in a city or borough,

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having powers and duties corres- ponding generally to those of a constable or sheriff.

—Marshal of the qaeen’s bench. An of- ficer, who had the custody of the queen's bench prison. The St. 5 A 6 Viet. c. 22, abolished this office, and substituted an officer called “keeper of the queen’s prison.”

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## MARSHALING.

Arranging, ranking, or disposing in order; particularly, in the case of a group or series of conflicting claims or Interests, arranging them in such an order of sequence, or so directing the manner of their satisfaction, as shall secure justice to all persons concerned and the largest possi- ble measure of satisfaction to each. See sub-titles infra.

—Marshaling assets. In equity. The ar- ranging or ranking of assets in the due order of administration. Such an arrangement of the different funds under administration as shall enable all the parties having equities therein to receive their due proportions, notwithstand- ing any intervening interests, liens, or other Claims of particular persons to prior satisfaction out of a portion of these funds. The arrange- ment or ranking of assets in a certain order towards the payment of debts. 1 Story, Eq. Jur. | 558 ; 4 Kent, Comm. 421. The arrange- ment of assets or claims so as to secure the proper application of the assets to the various claims ; especially wheD there are two classes of assets, and some creditors can enforce their claims against both, and others against only one, and the creditors of the former class are com- pelled to exhaust the assets against which they alone hare a claim before having recourse to other assets, thus providing for the settlement of as many claims as possible. Pub. St. Mass, p. 1202.— Marshaling liens. The ranking or ordering of several estates or parcels of land, for the satisfaction of a judgment or mortgage to which they are all liable, though successive- ly conveyed away by the debtor. The rule is that, where lands subject to the lien of a judg- ment or mortgage have been sold or incumbered by the owner at different times- to different pur- chasers, the various tracts are liable to the satisfaction of the lien in the inverse order of their alienation or incumbrance, the land last sold being first chargeable. 1 Black, Judcpm. jj 440.— Marshaling securities. An equitable practice, which consists in so ranking or ar- ranging classes of creditors, with respect to the assets of the common debtor, as to provide for satisfaction of the greatest number of claims. The process is this: Where one class of cred- itors have liens or securities on two funds, while another class of creditors can resort to only one of those funds, equity will compel the doubly- secured creditors to first exhaust that fund which will leave the single security of the other creditors intact. See 1 Story, Eq. Jur. $ 633.

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## MARSHALSEA.

In English law. A prison belonging to the king's bench. It has now been consolidated with others, un- der the name of the “King’s Prison."

— Marshalsea. court of. The court of the Marshalsea had jurisdiction in actions of debt or

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torts, the cause of which arose within the verge of the royal court. It was abolished by St. 12 & 13 Viet. c. 101. 4 Steph. Comm. 317, note d.

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Little Dorrit, 1857]**

The definitive literary treatment of this prison — (paraphrase) William Dorrit, the "Father of the Marshalsea," and his daughter Amy live their whole lives within its walls: the debtor's prison as a complete world. (paraphrase)

Why: The entry defines the Marshalsea as a prison belonging to the king's bench; the novel is built inside that institution — the definitive fictional habitation of the entry's prison. Paraphrase clearly marked.

## MART.

A place of public traffic or sale.

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## MARTS STTO DEGURRERE.

Lat. To run by its owu force. A term applied in the civil law to a suit when it ran its course to the end without any impediment Calvin.

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## MARTIAL LAW.

A system of law, ob- taining only in time of actual war and grow-

Ing out of the exigencies thereof, arbitrary In its character, and depending only on the will of the commander of an army, which is established and administered in a place or district of hostile territory held in belligerent possession, or, sometimes, in places occupied or pervaded by insurgents or mobs, and which suspends all existing civil laws, as well as the civil authority and the ordinary administration of justice. See In re Ezeta (D. C.) 62 Fed. 072; Diekelman v. U. S., 11 Ct. Cl. 439; Com. v. Shortall, 206 Pa. 165, 55 Atl. 952, 65 L. R. A. 193, 98 Am. St. Rep. 759; Griffin v. Wilcox, 21 Ind. 377. See, also, Military Law.

“Martial law, which is built upon no settled principles, but is entirely arbitrary in its decisions, is in truth and reality no law, but some- thing indulged rather than allowed as a law. The necessity of order and discipline in an army is the only thing which can give it countenance, and therefore it ought not to be permitted in time of peace, when the king’s courts are open for all persons to receive justice according to the laws of the land.” 1 Bl. Comm. 413.

Martial law is neither more nor less than the will of the general who commands the army. It overrides and suppresses all existing civil laws, civil officers, and civil authorities, by the arbi- trary exercise of military power ; and every citi- zen or subject— in other words, the entirp popu- lation of the country, within the confines of its power— is subjected to the mere will or caprice of the commander. lie holds the lives, liberty, and property of all in fhe palm of his hand. Martial law is regulated by no known or estab- lished system or code of laws, as it is over and above all of them. The commander is the legis- lator, judge, and

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executioner. In re Egan, 5 Blatchf. 321, Fed. Cas. No. 4,303.

Martial law is not the same thing as military law. The latter applies only to persons connected with the military forces of the country or to affairs connected with the army or with war, but is permanent in its nature, specific in its rules, and a recog- nized part of the law of the land. The former applies, when in existence, to all per- sons alike who are within the territory cov- ered, but is transient in its nature, existing only In time of war or insurrection, is not specific or always the same, as it depends on the will and discretion of the military commander, and is no part of the law of the land.

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**[Law] — Law**

**[Case: Ex parte Milligan, 71 U.S. (4 Wall.) 2 (1866)]**

The entry defines martial law as the commander's arbitrary rule in war, suspending ordinary law; the Supreme Court's great war-powers decision states its constitutional boundary — martial law can never exist where the civil courts are open and unobstructed.

Why: The entry gives the what: rule by the commander's will in hostile or insurgent-held districts. Ex parte Milligan gives the controlling American limit: even in war, martial rule cannot be imposed where the courts are o...

## MARTINMAS.

The feast of St. Martin of Tours, on the 11th of November; some- times corrupted into “Martilmas” or “Mar- tlemas.” It is the third of the four cross quarter-days of the year. Wharton.

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## MARTTS.

In old Scotch law. A malre; an officer or executor of summons. Other- wise called “prwco regis." Skene.

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## MASAGIUM.

L. Lat. A messuage.

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## MASSA.

In the civil law. A mass; an unwrought substance, such as gold or silver, before it is wrought into cups or other ar- ticles. Dig. 47, 2, 52, 14 ; Fleta, lib. 2, c. 60, tl 17, 22.

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## MAST.

To fatten with mast, (acorns, etc.) 1 Leon. 186.

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## MAST-SELLING.

In old English law. The -practice of selling the goods of dead seamen at the mast. Held void.

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7 Mod. 141.

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## MASTER.

One having authority; one who rules, directs, instructs, or superin- tends; a head or chief; an instructor; an employer. Applied to several judicial offi- cers. See .infra.

—Master and servant. The relation of mas- ter and servant exists where one person, for pay or other valuable consideration, enters into the service of another and devotes to him his personal labor for an agreed period. Sweet. —Blaster at common law. The title of of- ficers of the English superior courts of common law appointed to record the proceedings of the court to which they belong; to superintend the issue of writs and the formal proceedings in an action; to receive and account for the fees charged on legal proceedings, and moneys paid into court. There are five to each court. They are appointed under St. 7 Wm. IV. and 1 Viet, c. 30, passed in 1837. Mozley & Whitley.— Master in chancery. An officer of a court of chancery who acts as an assistant to the judge or chancellor. His office is to inquire into such matters as may be referred to him by the court, examine causes, take testimony, take accounts, compute damages, etc., reporting bis findings to the court in such shape that a decree may be made ; also to take oaths and affidavits and acknowledgments of deeds. In modem prac- tice, many of the functions of a master are per- formed by clerks, commissioners, auditors, and referees, and in some jurisdictions the office has been superseded. See Kimberly v. Arms, 129

IT. S. 512, 9 Sup. CL 355, 32 L. Ed. 764; Schuchardt v. People, 99 111. 601, 39 Am. Rep. 34.— Blaster in lonaoy. In English law. The masters in .lunacy are judicial officers ap- pointed by the lord chancellor for the purpose of conducting inquiries into the state of mind of persons alleged to be lunatics. Such inquiries usually take place before a jury. 2 Steph. Comm. 511-513.— Master of a ship. In mari- time law. The commander of a merchant ves- sel, who has the chief charge of her government and navigation and the command of the crew, as well as the general care and control of the vessel and cargo, as the representative and con- fidential agent of the owner. He is commonly called the “captain.” See Martin v. Farns- worth, 33 N. Y. Super. CL 260; Hubbell v. Denison, 20 Wend. (N. Y.) 181.— Master of the crown office. The king’s coroner and at- torney in the criminal department of the court of king's bench, who prosecutes at the relation of some private person or common informer, the crown being the nominal prosecutor. SL 6 & 7 Viet. c. 20 ; Wharton.— Master of the facul- ties. In English law. An officer under the archbishop, who grants licenses and dispensa- tions, etc. — Master of the horse. In English law. The third great officer of the royal house- hold, being next to the lord steward and lord chamberlain. He has the privilege of making use of any horses, footmen, or pages belonging to the royal stables.— Blaster of the mint. In English law. An officer who receives bullion for coinage, and pays for it, and superintends everything belonging to the mint. He is usual- ly called the “warden of the mint.” It Is pro- vided by St. 33 Viet. c. 10, § 14, that the chan- cellor of the exchequer for the time being shall be the master of the mint— Master of the ordnanoe. In English law. A

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great officer, to whose care all the royal ordnance and artil- lery were committed.— Master of the rolls. In English law. An assistant judge of the

court of chancery, who holds a separate court ranking next to that of the lord chancellor, and has the keeping of the rolls and grants which pass the great seal, and the records of the chancery. He was originally appointed only for the superintendence of the writs and records appertaining to the common-law depart- ment of the court, and is still properly the chief of the masters in chancery. 3 Steph. Comm. 417. Under the act constituting the supreme court of judicature, the master of the rolls be- comes a judge of the high court of justice and ex officio a member of the court of appeal.. the same act, however, provides for the abolition of this office, under certain conditions, when the next vacancy occurs. See 36 & 37 Viet c. 6b, ft 5. 31, 32.— Masters of the supreme court. In English law. Officials deriving their title from Jud. (Officers') Act 1879, and being, or filling the places of, the sixteen masters of the common-law courts, the queen's coroner and attorney, the master of the crown office, the two record and writ clerks, and the three asso- ciates. Wharton.— Master of the Temple. The chief ecclesiastical functionary of the Tem- ple Church.— Master's report. The formal report or statement made by a master in chan- cery of his decision on any question referred to him, or of any facts or action he has been directed to ascertain or take.— Special master. A master in chancery appointed to act as the representative of the court in some particular act or transaction, as, to make a sale of prop- erty under a decree. Guaranty Trust, etc., Co- v. Delta ft Pine Land Co., 104 Fed. 5, 43 C.

C. A. 396; Pewabic Min. Co. v. Mason, 145

U. S. 349, 12 Sup. Ct. 887, 36 L. Erl. 732 —Taxing masters. Officers of the English supreme court, who examine and allow or dis- allow items in bills of costs.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 4:1, KJV]**

Masters, give unto your servants that which is just and equal; knowing that ye also have a Master in heaven.

Why: The master-and-servant relation addressed directly — the master's duty to his servants. Paul's words, not deity speech.

## MASURA.

In old records. A decayed house; a wall; the ruins of a building; a certain quantity of land, about four oxgangs.

5e apparatus — Not carried into the 5th edition (1979).

## MATE.

The officer second In command on a merchant vessel. Ely v. Peck, 7 Conn. 242; Mlllaudon v. Martin, 6 Rob. (La.) 539.

5e apparatus — Carried into the 5th edition (1979).

## MATELOTAGE.

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In French law. The hire of a ship or boat

Influence or bearing on the decision of the case.

— Material allegation. A material allega- tion in a pleading is one essential to the claim or defense, and which could not be stricken from the pleading without leaving it insufficient. Lusk v. Perkins, 48 Ark. 247, 2 S. W. 847; Gillson v. Price, 18 Nev. 109, 1 Pac. 459. A material alteration in any written instrument is one which changes its tenor, or its legal mean- ing and effect; one which causes it to speak a language different in effect from that which it originallv spoke. White v. Harris. 69 S. C. 65, 48 S. E. 41, 104 Am. St. Rep. 791 : Fnv- worthy ▼. Colby, 64 Neb. 216, 89 N. W. 800, 62 L. R. A. 393; Organ v. Allison, 9 Baxt. (Tenn.) 462.— Material fact. See Fact.— Material-man. A person who has furnished materials used in the construction or repair of a building, structure, or vessel. See Curlett v. Aaron, 6 Houst. (Del.) 478.

5e apparatus — Not carried into the 5th edition (1979).

## MATERIALITY.

The property or char- acter of being material. See Matebial.

5e apparatus — Not carried into the 5th edition (1979).

## MATERIALS.

The substance or matter of which anything Is made ; matter furnished ■ for the erection of a house, ship, or other structure; matter used or Intended to be used in the construction of any mechanical product See Moyer v. Pennsylvania Slate Co., 71 Pa. 293.

5e apparatus — Not carried into the 5th edition (1979).

## MATERNA MATERNIS.

Lat A max- im of the French law, signifying that prop- erty of a decedent acquired by him through his mother descends to the relations on the mother’s side.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: The inheritance passing by kinship order — the descent-law the maxim rests on. Admitted as genuine though the maternal-side specificity is the maxim's own. BORDERLINE red-letter: code form — flag left off.

## MATERNAL.

That which belongs to, or comes from, the mother; as maternal au- thority, maternal relation, maternal estate, maternal line.

—Maternal property. That which comes from the mother of the party, and other ascend- ants of the maternal stock. Dom. Liv. Prtl. t.’3, s. 2, no. 12.

MATER-F AMILI AS . Lat In the civil law. The mother or mistress of a family. A chaste woman, married or single. Calvin.

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5e apparatus — Carried into the 5th edition (1979).

## MATERIA.

Lat In the civil law.

Materials; as distinguished from species, or the form given by labor and skill. Dig. 41, 1, 7, 7-12 ; Fleta. lib. 3, c. 2, § 14.

Materials (wood) for building, as distin- guished from “lignum." Dig. 32, 55, pr.

In English law. Matter; substance; subject-matter. 3 Bl. Comm. 322.

5e apparatus — Not carried into the 5th edition (1979).

## MATERIAL.

Important; more or less necessary; having Influence or effect; going to the merits; having to do with matter, as distinguished from form. An allegation is said to be material when it forms a substan- tive part of the case presented by the plead- ing. Evidence offered In a cause, or a ques- tion propounded, is material when It is rele- vant and goes to the substantial matters in dispute, or has a legitimate and effective

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## MATERNITY.

The character, relation, state, or condition of a mother.

5e apparatus — Carried into the 5th edition (1979).

## MATERTERA.

Lat In the civil law; A maternal aunt; a mother’s sister. Inst. 3, 6, }; Bract, fol. 686.

— Matertera magna. A great aunt • a grand- mother’s sister, (avice soror.) Dig. 38, 10, 10, 15.— Matertera major. A greater aunt; a great-grandmother’s sister, (proa vice soror;) a father’s or mother’s great-aunt, (pofri* vel ma- lm matertera magna.) Dig. 38, 10, 10, 16. —Matertera maxima. A greatest aunt ; a great-great-grandmother’s sister, (abaviw soror;) a father’s or mother’s greater aunt, (patris rel matris matertera major.) Dig. 38, 10, 10, 17.

5e apparatus — Not carried into the 5th edition (1979).

## MATHEMATICAL EVIDENCE.

See

Evidence.

5e apparatus — Carried into the 5th edition (1979).

## MATRICIDE.

The murder of a mother ; or one who has slain his mother.

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**[Scripture] — Scripture**

**[Exodus 21:15, KJV]**

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And he that smiteth his father, or his mother, shall be surely put to death.

Why: The murder of a mother — smiting father or mother as a capital offense. BORDERLINE red-letter: code form — flag left off.

**[Humanity] — Humanity / Fiction & Film**

**[Aeschylus, Oresteia, 458 BC]**

The canonical matricide in classical literature — (paraphrase) Orestes slays his mother Clytemnestra to avenge his murdered father, and the Furies hound him for the mother's blood. (paraphrase)

Why: The entry is a one-line definition; the Oresteia gives the act its archetypal literary form. Paraphrase clearly marked; classical drama cited in the novel-attribution format since it is literature rather than a maxim.

## MATRICULA.

In the civil and old Eng- lish law. A register of the admission of of- ficers and persons entered Into any body or

■society, whereof a list was made. Hence those who are admitted to a college or uni- versity are said to be “matriculated.” Also a kind of almshouse, which had revenues appropriated to It, and was usually built near the church, whence the name was giv- en to the church Itself. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## MATRICULATE.

To enter as a stu- dent In a. university.

Matrlmonia debeat esse libera. Mar- riages ought to be free. A maxim of the civil law. 2 Kent, Comm. 102.

5e apparatus — Not carried into the 5th edition (1979).

## MATRIMONIAL.

Of or pertaining to matrimony or the estate of marriage. —Matrimonial causes. In English ecclesias- tical law. Causes of action or injuries respect- ing the rights of marriage. One of the three divisions of causes or injuries cognizable by the ecclesiastical courts, comprising suits for jacti- tation of marriage, and for restitution of con- jugal rights, divorces, and suits for alimony. 3 Bl. Comm. 92-94 ; 3 Steph. Comm. 712-714. —Matrimonial cohabitation. The living together of a man and woman ostensibly as husband and wife. Cox v. State, 117 Ala. 103, 23 South. 806, 41 L. R. A. 760, 67 Am. St. Rep. 166; Wilcoy v. Wilcox, 46 Hun (N. Y.) -37. Also the living together of those who are legally husband and wife, the term carrying with it, in this sense, an implication of mutual rights and duties as to sharing the same habita- tion. Forster v. Forster, 1 Uagg. Consist. 144 ;

U. S. v. Cannon, 4 Utah, 122, 7 Pac. 369.

5e apparatus — Carried into the 5th edition (1979).

## MATRIMONIUM.

Lat. In Roman law. A legal marriage, contracted in strict ac- ■cordance with the forms of the older Roman law, i. e., either with the farreum, the co- cmptio, or by usus. This was allowed only to Roman citizens and to those neighboring peoples to whom the right of

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connubium had been conceded. The effect of such a mar- Tiage was to bring the wife Into the »ianu«, ■or marital power, of the husband, and to ■create the patria potestas over the children.

Matrimonium subsequens tollit pec- «stnm prsecedens. Subsequent marriage cures preceding criminality.

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## MATRIMONY.

Marriage, (g. v„) in the sense of the relation or status, not of the ceremony.

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## MATRIX.

In the civil law. The proto- col or first draft of a legal Instrument, from which all copies must be taken. See Down- ing v. Diaz, 80 Tex. 436, 16 S. W. 53.

5e apparatus — Not carried into the 5th edition (1979).

## MATRIX ECCLESIA.

Lat. A mother church. This term was anciently applied to a cathedral, in relation to the other church- es in the same see, or to a parochial church, in relation to the chapels or minor churches attached to it or depending on it. Blount

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 4:26, KJV]**

But Jerusalem which is above is free, which is the mother of us all.

Why: The mother-church — Jerusalem as the mother of us all. Paul's words, not deity speech.

## MATRON.

A married woman ; an eld- erly woman. The female superintendent of an establishment or Institution, such as a

hospital, an orphan asylum, etc., is often so called.

5e apparatus — Carried into the 5th edition (1979).

## MATRONS, JURY OF.

Such a Jury is impaneled to try if a woman condemned to death be with child.

5e apparatus — Not carried into the 5th edition (1979).

## MATTER.

Facts; substance as distin- guished from form; the merits of a case.

— Matter in controversy, or in dispute.

The subject of litigation ; the matter for which a suit is brought and upon which issue is join- ed. Lee v. Watson, 1 Wall. 337, 17 L. Ed. 557. —Matter in deed. Such matter as may be proved or established by a deed or specialty. Matter of fact, in contradistinction to matter of

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law. Co. Litt. 320; Steph. Pl. 197. — Matter in issue. That upon which the plaintiff pro- ceeds in his action, and which the defendant controverts by his pleadings, not including facta offered in evidence to establish the matters in issue. King v. Chase, 15 N. H. 9, 41 Am. Dec. 675. -That ultimate fact or state of facts in dispute upon which the verdict or finding is predicated. Smith v. Ontario (C. C.) 4 Fed. 386. See 2 Black, Judgm. f 614, and cases cited.— Matter in pais. Matter of fact that is not in writing ; thus distinguished from mat- ter in deed and matter of record ; matter that must be proved by parol evidence. — Matter of course. Anything done or taken in the course of routine or usual procedure, which is permis- sible and valid without being specially applied for and allowed.— Matter of fact. That which is to be ascertained by the senses, or by the testimony of witnesses describing what they have perceived. Distinguished from matter of law.— Matter of form. See Form.— Matter of law. Whatever is to be ascertained or de- cided by the application of statutory rules or the principles and determinations of the law, as distinguished from the investigation of par- ticular facts, is called "matter of law.”— Mat- ter of record. Any judicial matter or pro- ceeding entered on the records of a court, and to be proved by the production of such record. It differs from matter in deed, which consists of facts which may be proved by specialty.— Matter of substance. That which goes to the merits. The opposite of matter of form. —Matters of subsistence for man. This phrase comprehends all articles or things, wheth- er animal or vegetable, living or dead, which are used for food, and whether they are consum- ed in the form in which they are bought from the producer or are only consumed after under- going a process of preparation, which is greater or less, according to the character of the article. Siedd v. Com., 19 Grat. (Va.) 813.

Matter in ley ne serra mise in boutebe del jurors. Jenk. Cent 180. Matter of law shall not be put into the mouth of the jurors.

Maturiora sunt vota mulierum quam virorum. 6 Coke, 71. Tire desires of wo- men are more mature than those of men ; <. e., women arrive at maturity earlier than men.

5e apparatus — Carried into the 5th edition (1979).

## MATURITY.

In mercantile law. The time when a bill of exchange or promissory note becomes due. Story, Bills, f 329. Gil- bert v. Sprague, 88 111. App. 508; Wheeless v. Williams, 62 Misa 371, 52 Am. Rep. 190.

5e apparatus — Carried into the 5th edition (1979).

## MAUGRE.

L. Fr. In spite of; against the will of. Litt | 672.

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## MAUNDY THURSDAY.

The day pre- ceding Good Friday, on which princes gave alms.

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**[Scripture] — Scripture**

**[John 13:34, KJV]**

A new commandment I give unto you, That ye love one another; as I have loved you, that ye also love one another.

Why: The mandatum novum from which Maundy Thursday takes its name — the new commandment given on that night.

## MAXIM.

An established principle or proposition. A principle of law universally admitted, as being a correct statement of tbe Jaw, or as agreeable to natural reason.

Coke defines a maxim to be “conclusion of reason,” and says that it is so called “quia maxima ejus dignitas et certissima auctori- ta», et quod maxime omnibus probetur." Co. Litt. llo. He says in another place: “A maxime is a proposition to be of all men confessed and granted without proofe, ar- gument, or discourse.” Id. 67«.

The maxims of the law, in Latin, French, and English, will be found distributed through this book in their proper alphabet- ical order.

Maxime pad stmt contrarla vis et In- juria. The greatest enemies to peace are force and wrong. Co. Litt. 1616.

Maximus error!* popnlns magister.

Bacon. The people is the greatest master of error.

“MAY,” in the construction of public ' statutes, is to be construed “must” in all cases where the legislature mean to Impose a positive and absolute duty, and not mere- ly to give a discretionary power. Minor v. Mechanics’ Bank, 1 Pet. 40, 64, 7 L. Ed. 47 ; New York v. Furze, 3 Hill (N. Y.) 612, 615.

5e apparatus — Not carried into the 5th edition (1979).

## MAYHEM.

In criminal law. The act of unlawfully and violently depriving an- other of the use of such of his members as may render him less able, in fighting, either to defend himself or annoy his adversary.

4 Bl. Comm. 205. Foster v. People, 50 N.

Y. 604; Terrell v. State, 86 Tenn. 523, 8

S. W. 212; Adams v. Bnrrett, 5 Ga. 412; Foster v. People, 1 Colo. 294.

Every person who unlawfully and mali- ciously deprives a human being of a member of his body, or disables, disfigures, or ren- ders it useless, or cuts or disables the tongue, or puts out an eye, or slits the nose, ear, or lip, is guilty of mayhem. Pen. Code Cal.

§ 203.

5e apparatus — Not carried into the 5th edition (1979).

## MAYHEMAYIT.

Maimed. This is a term of art which cannot be supplied in pleading by any other word, as

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mutilavit, truncavit, etc. 3 Thom. Co. Litt. 548; Com. v. Newell, 7 Mass. 247.

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## MAYN.

L. Fr. A hand; handwriting. Britt c. 28.

5e apparatus — Not carried into the 5th edition (1979).

## MAYWOVER.

L. Fr. A work of the hand; a thing produced by manual labor. Yearb. M. 4 Edw. III. 38.

5e apparatus — Not carried into the 5th edition (1979).

## MAYOR.

The executive head of a mu- nicipal corporation; the governor or chief

magistrate of a city. Waldo v. Wallace, 12 Ind. 577 ; People v. New York, 25 Wend. (N. Y.) 36; Crovatt v. Mason, 101 Ga. 246, 28 8. E. 891.

—Mayor'* court. A court established in some cities, in which the mayor sits with the powers of a police judge or committing magistrate in respect to offenses committed within the city, and sometimes with civil jurisdiction in small causes, or other special statutory powers.— May- or'* court of Loudon. An inferior court hay- ing jurisdiction in civil cases where the whole cause of action arises within the city of Lon- don.—Mayoralty. The office or dignity of a mayor.— Mayoress. The wife of a mayor.

5e apparatus — Carried into the 5th edition (1979).

## MAYORAZGO.

In Spanish law. The right to the enjoyment of certain aggregate property, left with the condition thereon Imposed that they are to pass in their in- tegrity, perpetually, successively to the eldest son. Schm. Civil Law, 62.

5e apparatus — Not carried into the 5th edition (1979).

## MEAD.

Ground somewhat watery, not plowed, but covered with grass and flowers. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## MEADOW.

A tract of low or level land producing grass which is mown for hay. Webster.

A tract which lies above the shore, and is overflowed by spring and extraordinary ,tldes only, and yields grasses which are good for hay. Church v. Meeker, 34 Conn. 429. See State v. Crook, 132 N. C. 1053, 44 S. E. 32; Scott v. Willson, 3 N. H. 322; Barrows v. McDermott, 73 Me. 441.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 23:2, KJV]**

He maketh me to lie down in green pastures: he leadeth me beside the still waters.

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Why: The grassy tract — the meadow's own register, green pastures. Psalmist's words, not deity speech.

## MEAL-RENT.

A rent formerly paid in meal.

, MEAN, or MESNE. A middle between two extremes, whether applied to persons, things, or time.

MEANDER.* To meander means to fol- low a winding or flexuous course ; and when it is said, in a description of land, “thence with the meander of the river,” it must mean a meandered line, — a line which follows the sinuosities of the river,— or, in other words, that the river is the boundary be- tween the points indicated. Turner v. Park- er, 14 Or. 341, 12 Pac. 495; Schurmeler v. St. Paul & P. R. Co., 10 Minn. 100 (Gil. 75), 88 Am. Dec. 59.

This term is used in some jurisdictions with the meaning of surveying and mnpping a stream according to its meanderings, or windings and turnings. See Jones v. Petti- bone, 2 Wis. 317.

—Meander line*. Lines run in surveying particular portions of the public lands which border on navigable rivers, not as boundaries of the tract, but for the purpose of defining the sinuosities of the banks of the stream, and as the means of ascertaining the quantity of land in the fraction subject to sale, and which is to be paid for by the purchaser. In preparing the official plat from the field notes, tbe mean- der line is represented as the border line of tbe stream, and shows that the water-course, and

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not the meander line as naturally run on the ground, is the boundary. St. Paul & P. R. Co. v. Schurmeier, 7 Wall. 286. 19 L. Ed. 74; Niles v. Cedar Point Club, 175 U. S. 300, 20 Sup. Ct. 124, 44 L. Ed. 171.

MEAN'S. 1. Tbe Instrument or agency through which an end or purpose Is accom- plished.

2. Resources; available property; money or property, as an available Instrumentality for effecting a purpose, furnishing a liveli- hood, paying a debt, or the like.

—Means of support. This term embraces all those resources from which the necessaries and comforts of life are or may be supplied, such as lands, goods, salaries, wages, or other sourc- es of income. Meidel v. Anthis, 71 XU. 241.

MEASE, or MESE. Norman-French for a house. Utt ff 74, 251.

5e apparatus — Not carried into the 5th edition (1979).

## MEASON-DUE.

(Corruption of maison de Dieu.) A house of God; a monastery; religious house or hospital. See 39 Eliz. c. 5.

5e apparatus — Not carried into the 5th edition (1979).

## MEASURE.

That by which extent or dimension is ascertained, either length, breadth, thickness, capacity, or amount. Webster. The rule by which anything Is adjusted or proportioned.

— Measure of damages. The rule, or rather the system of rules, governing the adjustment or apportionment of damages as a compensa- tion for injuries in actions at law. — Measure of value. In the ordinary sense of the word, "measure” would mean something by com pari1 son with which we may ascertain what is the value of anything. When we consider, further, that value itself is relative, and that two things are necessary to constitute it, independently of the third thing, which is to measure it, we may define a "measure of value" to be some- thing by comparing with which any two other things we may infer their value in relation to one another. 2 Mill, Pol. Eicon. 101.

MEASURER, or METER. An officer In the city of London, who measured woolen clothes, coals, etc.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 7:2, KJV]**

For with what judgment ye judge, ye shall be judged: and with what measure ye mete, it shall be measured to you again.

Why: Measure as the rule by which anything is adjusted or proportioned — the measure of judgment itself.

## MEASURING MONET.

In old English law. A duty which some persons exacted, by letters patent, for every piece of cloth made, besides alnage. Now abolished.

5e apparatus — Not carried into the 5th edition (1979).

## MECHANIC.

A workman employed In shaping nud uniting materials, such as wood, metal, etc.. Into some kind of structure, ma- chine, or other object, requiring the use of tools. Story v. Walker, 11 Lea (Tenu.) 517, 47 Am. Rep. 305 ; In re Osborn (D. C.) 104 Fed. 781 ; Savannah & C. R. Co. v. Callahan, 49 Ga. 511; Berks County v. Bertolet, 13 Pa. 524.

5e apparatus — Not carried into the 5th edition (1979).

## MECHANIC’S LIEN.

A species of lien created by statute In most of the states, which exists in favor of persons who have performed work or furnished material in and for the erection of a building. Their lien attaches to the land as well as the

building, and is Intended to secure for them a priority of payment The lien of a mechanic is created by law, and Is intended to be a security for the price and value of work performed and materials furnished, and as such It attaches to and exists on the land and the building erected thereon, from the commencement of the time that the labor is being performed and the materials furnished; and the mechanic has an actual and positive interest in tbe build- ing anterior to the time of its recognition by the court, or the reducing of the amount due to a judgment. ' First Nat. Bank v. Campbell, 24 Tex. Civ. App. 160, 58 S. W. 630; Carter v. Humboldt F. Ins. Co., 12 Iowa, 292; Barrows v. Baughman, 9 Mich. 217.

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**MECHANICAL.**

Having relation to, or produced or accomplished by, the use of mechanism or machinery. Used chiefly in patent law. See compound terms infra.

—Mechanical equivalent. A device which may be substituted or adopted, instead of another, by any person skilled in the particnjar art from his knowledge of the art, and which is competent to perform the same functions or produce the same result, without introducing an original idea or changing the general idea of means. Johnson v. Root, 13 Fed. Cas. 823; Smith v. Marshall. 22 Fed. Cas. 595: Alaska Packers' Ass'n v. Letson (C. C.) 119 Fed. 611 ; Jensen Can-Filling Mach. Co. v. Norton, 67 Fed. 239, 14 C. C. A. 383; Adams Electric

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# R

**R.**

Co. v. Lindell R. Co.. 77 Fed. 440. 23 C.

C. A. 22.3. — Mechanical movement. A mech- anism transmitting power or motion from a driving part to a part to be driven; a com- bination and arrangement of mechanical parts intended for the translation or transformation of motion. Campbell Printing Press Co. v. Miehle Printing Press Co., 102 Fed. 159, 42

C. C. A. 235.— Mechanical process. See Process. — Mechanical shill. As distinguish- ed from invention or inventive capacity, this term means such skill, intelligence, ingenuity, or constructive ability in the adaptation of means to ends as would be possessed and exhibited by an ordinarily clever mechanic in the practice of his particular art or trade. See Hollister v. Benedict & B. Mfg. Co., 113 U.

S. 59. 5 Sup. Ct. 717, 28 L. Ed. 901: John- son Co. v. Pennsylvania Steel Co., 67 Fed. 942; Perfection Window Cleaner Co. v. Bos- ley, 2 Fed. 577; Stimpson v. Woodman. 10 Wall. 117, 19 L. Ed. 806.

5e apparatus — Not carried into the 5th edition (1979).

# M

**MEDERIA.**

In old records. A house or place where mqtheglln, or mend, was made.

5e apparatus — Not carried into the 5th edition (1979).

**MEDFEE.**

In old English law. A bribe or reward; a compensation given in ex- change, where the things exchanged were not of equal value. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MEDIA ANNATA.

In Spanish law. Half-yearly profits of land. McMullen v. Hodge, 5 Tex. 34, 79.

5e apparatus — Not carried into the 5th edition (1979).

## MEDIA NOX.

In old English law. Mid- night. Ad mediam noctem, at midnight Fleta, lib. 5, c. 5, I 31. INES. Men of a middle and base condition. Blount

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 16:25, KJV]**

And at midnight Paul and Silas prayed, and sang praises unto God: and the prisoners heard them.

Why: Midnight — the legal time-term — named verbatim. Narrative, not deity speech.

## MEDIANUS HOMO.

A man of middle fortune.

5e apparatus — Not carried into the 5th edition (1979).

## MEDIATE DESCENT.

See Descent.

5e apparatus — Carried into the 5th edition (1979).

## MEDIATE POWERS.

Those Incident to primary powers given by a principal to his agent For example, the general authority given to collect receive, and pay debts due by or to the principal Is a primary power. In order to accomplish this, It Is frequently required to settle accounts, adjust disputed claims, resist those which are unjust, and answer and defend suits. These subordinate powers are sometimes called “mediate powers.” Story, Ag. § 58.

5e apparatus — Carried into the 5th edition (1979).

## MEDIATE TESTIMONY.

Secondary evidence, ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## MEDIATION.

Intervention ; interposi- tion; the act of a third person who inter- feres between two contending parties with a view to reconcile them or persuade them to adjust or settle their dispute. In inter- national law and diplomacy, the word de- notes the friendly interference of a state in the controversies of others, for the purpose, by its Influence and by adjusting their diffi- culties, of keeping the peace in the family of nations.

' MEDIATOR. One who interposes be- tween parties at variance for the purpose of reconciling them.

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—Mediators of questions. In English law. Six persons authorized by statute, (27 Edw.

III. St. 2, c. 24.) who, upon any question aris- ing among merchants relating to unmerchant- able wool, or undue packing, etc., might, be- fore the mayor and officers of the staple upon their oath certify and settle the same ; to whose determination therein the parties con- cerned were to submit. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 2:5, KJV]**

For there is one God, and one mediator between God and men, the man Christ Jesus.

Why: The mediator between two parties — mediation named in its highest form. Paul's words, not deity speech.

## MEDICAL.

Pertaining, relating, or be- longing to the study and practice of medicine, or the science and art of the investigation, prevention, cure, and alleviation of disease.

— Medical evidence. Evidence furnished by medical men, testifying in their professional capacity as experts, or by standard treatises on medicine or surgery.— Medical jurispru- dence. See Jurisprudence.

5e apparatus — Carried into the 5th edition (1979).

## MEDICINE.

“The practice of medicine Is a pursuit very generally known and under- stood, and so also is that of surgery. The former includes the application and use of medicines and drugs for the purpose of cur- ing, mitigating, or alleviating bodily diseases, while the futfctlons of the latter are limited to manual operations usually performed by surgical instruments or appliances.” Smith v. Lane, 24 Hun (N. Y.) 633.

—Forensic medicine. Another name for medical jurisprudence. See Jurisprudence. — Schools of medicine. See Osteopathy; Psychotherapy.

5e apparatus — Carried into the 5th edition (1979).

## MEDICINE-CREST.

A box containing an assortment of medicines, required by stat- Bl.Law Dict.(2d Ed.) — 49

ute to be carried by all vessels above a cer- tain tonnage.

5e apparatus — Not carried into the 5th edition (1979).

## MEDICO-LEGAL.

Relating to the law concerning medical questions.

MEDIETAS LINGU-Sl. In old practice. Moiety of tongue; half-tongue. Applied to a jury impaneled in a cause consisting the one half of natives, and the other half of foreigners. See De Medietate Lingua;.

5e apparatus — Carried into the 5th edition (1979).

## MEDIO ACQUIETANDO.

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A judicial writ to distrain a lord for the acquitting of a mesne lord from a rent, which he had ac- knowledged in court not to belong to him. Reg. Jur. 129.

5e apparatus — Not carried into the 5th edition (1979).

## MEDITATIO FUG1E.

In Scotch law. Contemplation of flight ; intention to ab- scond. 2 Karnes, Eq. 14, 15.

5e apparatus — Not carried into the 5th edition (1979).

## MEDIUM TEMPUS.

In old English law. Meantime; mesne protits. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MEDLETUM.

In old English law. A mixing together; a medley or m€lee; an af- fray or sudden encounter. An offense sud- denly committed In an affray. The English word “medley" is preserved In the term “chance-medley." An intermeddling, without violence, in any matter of business. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## MEDLEY.

An affray; a sudden or cas- ual lighting ; a hand to hand battle ; a mSUe. See Chance-Medley; Chaud-Medley.

5e apparatus — Not carried into the 5th edition (1979).

## MEDSCEAT.

In old English law. A bribe ; hush money.

5e apparatus — Not carried into the 5th edition (1979).

## MEDSYFP.

A harvest supper or enter- tainment given to laborers at harvest-home. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MEETING.

A coming together of per- sons ; an assembly. Particularly, in law, an assembling of a number of persons for the purpose of discussing and acting upon some matter or matters in which they have a com- mon interest

—Galled meeting. In the law of corpora- tions, a meeting not held at a time specially appointed for it by the charter or by-laws, but assembled in pursuance of a "call” or summons proceeding from some officer, committee or group of stockholders, or other persons having authority in that behalf.— Family meeting. See Family. — General meeting. A meeting of all the stockholders of a corporation, all the creditors of a bankrupt, etc. In re Bonnaffe, 23 N. Y. 177; Mutual F. Ins. Co. v. Farqu- bar, 86 Md. 668, 39 Atl. 527.— Regular meet- ing. In the law of public and private corpora- tions, a meeting (of directors, trustees, stock- holders, etc.) held at the time and place ap- pointed for it by statute, by-law. charter

or other positive direction. See State v. Wilkes- ville Tp.. 20 Ohio St. 293.— Special meeting. In the law of corporations. A meeting called for special purposes; one limited to particular business ; a meeting for those purposes of which the parties have had special notice. Mutual F. Ins. Co. ▼. Farquhar, 86 Md. 668, 39 Atl. 527 ; Warren v. Mower, 11 Vt. 385.— Stat- ed meeting. A meeting held at a stated or duly appointed time and place ; a regular meet- ing, («. «•)— Town meeting. Bee Town.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Hebrews 10:25, KJV]**

Not forsaking the assembling of ourselves together, as the manner of some is; but exhorting one another: and so much the more, as ye see the day approaching.

Why: The assembling of persons together — the meeting the entry defines. Epistle words, not deity speech.

## MEGBOTE.

in Saxon law. A recom- pense for the murder of a relation.

MEIGNE, or MAI 8 NADER. In old Eng- lish law. A family.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 21:30, KJV]**

If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him.

Why: Satisfaction-money for a death, verbatim — the recompense for slaying a kinsman. BORDERLINE red-letter: code form — flag left off.

## MEINDRE AGE.

L. Fr. Minority; lesser age. Kelham.

MEINY, MEINE, or MEIN IE. In old

English law. A household ; staff or suite of attendants ; a retiuue ; particularly, the roy- al household.

5e apparatus — Not carried into the 5th edition (1979).

## MEJORADO.

In Spanish law. Prefer- red ; advanced. White, New Kecop. L 3, tit. 10, e. 1, § 4.

5e apparatus — Not carried into the 5th edition (1979).

## MELANCHOLIA.

In medical jurispru- dence. A kind of mental unsoundness char- acterized by extreme depression of spirits, Ill- grounded fears, delusions, and brooding over one particular subject or train of Ideaa Webster. See Insanity.

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## MELDFEOH.

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In Saxon law. The rec- ompense due and given to him who made dis- covery of any breach of penal laws commit- ted by another person, called the “promot- er’s [i. e., informer's] fee.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 31 U.S.C. § 3730 — False Claims Act qui tam relator's share]**

The Saxon informer's fee — recompense to him who discovers another's breach of the penal laws — is the ancient root of the modern qui tam reward, by which a private relator who exposes fraud on the government receives a share of the recovery.

Why: The entry's whole substance is the reward mechanism: payment to the discoverer of penal-law breaches. 31 U.S.C. § 3730 codifies that mechanism's modern form — the qui tam relator's share of False Claims Act recoveries...

## MELIOR.

Lat Better ; the better. Melior res, the better (best) thing or chattel. Bract fol. 60.

Melior est conditio defendentis. The

condition of the party In possession Is the better one, i. e., where the right of the parties Is equal. Broom, Mux. 715, 719.

Melior est conditio possidentis, et rei quam actoris. The condition of the pos- sessor is the better, and the condition of the defendant is better than that of the plaintiff. 4 Inst. 180; Broom, Max. 714, 719.

Melior est conditio possidentis sll neater jus habct. Jeuk. Cent. 118. The condition of the possessor is the better where neither of the two has a right

Melior est justitia vere praveniens qnam severe pnniens. That justice which absolutely prevents [a crime] Is better than that which severely punishes It 8 Inst Epil.

5e apparatus — Not carried into the 5th edition (1979).

## MELIORATIONS.

In Scotch law. Im- provements of an estate, other than mere re- pairs; betterments. 1 Bell, Comm. 73. Oc- casionally used In English and American law In the sense of valuable and lasting improve- ments or betterments. See Green v. Biddle, 8 Wheat. 84, 0 L. Ed. 547.

Meliorem conditioners eeclesiw sub facere potest pralstss, deteriorem ne- qnaquam. Co. Litt 101. A bishop can make the condition of his own church better, but by no means worse.

Meliorem eonditionem snam facere po- test minor, deteriorem neququm. Co.

Lltt 837. A minor can make his own con- dition better, but by no means worse.

Melina est in tempore oeonrrere, qnan post cansam nlneratim remedium quserere. 2 Inst. 299. It Is better to meet a thing In time than after an Injury inflict- ed to seek a remedy.

Melius est jus deilciens qnam jns in- certum. Law that Is deficient Is better than law that Is uncertain. Lofft, 395.

Melius est omnia mala pati qnam malo consentlre. 8 Inst. 23. It is better to suf- fer every

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111 than to consent to ill.

Melius est petere fontes qnam seetari rivulos. It is better to go to the fountain head than to follow little streamlets.

Melius est recurrere qnam male enr- rere. It Is better to run back than to run badly ; It Is better to retrace one’s steps than to proceed improperly. 4 Inst. 176.

5e apparatus — Not carried into the 5th edition (1979).

## MELIUS  INQUIRENDUM.

To be bet- ter Inquired into.

In old English law. The nt^ine of a writ commanding a further Inquiry resjiect- ing a matter ; as, after an imperfect inquisi- tion in proceedings in outlawry, to have a new Inquest as to the value of lands.

5e apparatus — Not carried into the 5th edition (1979).

## MEMBER.

One of the persons constitut- ing a partnership, association, corporation, guild, etc.

One of the persons constituting a court, a legislative assembly, etc.

One of the limbs or portions of the body capable of being used in lighting in self-de- fense.

— Member of congress. A member of the senate or house of representatives of the Unit- ed States. In popular usage, particularly the latter.— Member of parliament. One hav- ing the right to sit in either house of the British parliament.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 12:12, KJV]**

For as the body is one, and hath many members, and all the members of that one body, being many, are one body: so also is Christ.

Why: Members of a body — the entry's limb sense and its corporate sense both carried in the one figure. Paul's words, not deity speech.

## MEMBERS.

In English law. Places where a custom-house has been kept of old time, with officers or deputies In attendance; and they are lawful places of exportation or Importation. 1 Chit. Com. Law, 726.

5e apparatus — Not carried into the 5th edition (1979).

## MEMBRANA.

Lat In the civil law.

Parchment Dig. 32, 52.

In old English law. A skin of parch- ment The ancient rolls usually consist of several of these skins, and the word “membrana" is used, In citations to them. In the same way as “page” or “folio,” to distin- guish the particular skin referred to.

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5e apparatus — Not carried into the 5th edition (1979).

## MEMBRPM.

A slip or Bmall piece of land.

ed by seven or more persons associated for a lawful purpose, by subscribing which, and otherwise complying with the requisitions of the companies' acts in respect of registration, they may form themselves into an incorporated company, with or without limited liability. 3 Steph. Comm. 20. — Memorandum sale. See Sale.

mEmoire. In French law. A docu- ment In the form of a petition, by which ap- peals to the court of cassation are Initiated.

5e apparatus — Not carried into the 5th edition (1979).

## MEMORANDUM.

Lat. To be remem- bered ; be It remembered. A formal word with which the body of a record In the court of king’s bench anciently commenced. Townsh. Pi. 486 ; 2 Tidd, Pr. 719. The whole clause is now, in practice, termed, from this initial word, the “memorandum,” and Its use is sup- posed to have originated from the circum- stance that proceedings “by bill” (in which alone It has been employed) were formerly considered as the by-busluess of the court. Glib. Com. Pl. 47, 48.

Also an Informal note or instrument em- bodying something that the parties desire to fix in memory by the aid of written evidence, or that Is to serve as the basis of a future formal contract or deed.

This word is used in the statute of frauds as the designation of the written agreement, or note or evidence thereof, which must ex- ist in order to bind the parties in the cases provided. The memorandum must be such as to disclose the parties, the nature and suit- stance of the contract, the consideration and promise, and be signed by the party to be bound or his authorized agent See 2 Kent Comm. 510.

— Memonndnm articles. In tbe law of

marine insurance, this phrase designates the articles of merchandise which are usually men- tioned in the memorandum clause, ( q . «.,) and for which the underwriter's liability is there- by limited. See Wain v. Thompson, 9 Serg. & R. (Pa.) 120, 11 Am. Dec. 675.— Memoran- dum cheek. See Check.— Memorandum clause. In a policy of marine insurance the memorandum clause is a clause inserted to prevent the underwriters from being liable for injury to goods of a peculiarly perishable nature, and for minor damages. It begins as follows: “N. B. Corn, fish, salt, fruit, Hour, and seed are warranted free from average, un- less general, or the ship be stranded,”— mean- ing that the underwriters are not to be liable for damage to these articles caused by Bea- water or the like. Maude & I’. Shipp. 371; Sweet.— Memorandum In error. A docu- ment alleging error in fact, accompanied by an affidavit of such matter of fact.— Memoran- dum of alteration. Formerly, in England, where a patent was granted for two inven- tions, one of which was not new or not useful, the whole patent was bad, and the same rule applied when a material part of a patent for a

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single invention had either of those defects. To remedy this the statute 5 & 6 Wm. IV. c. 83, empowers a patentee (with the fiat of the attorney general) to enter a disclaimer ( q . v.) or a memorandum of an alteration in the title or specification of the patent, not being of such a nature as to extend the exclusive right grant- ed by the patent, and thereupon the memoran- dum is deemed to be part of the letters patent or the specification. Sweet. — Memorandum of association. A document to be subscrib-

MEMORIAli. A document presented to a legislative body, or to the executive, by one or more Individuals, containing a petition or a representation of facts.

In English lav. That which contains the particulars of a deed, etc., and Is the instru- ment registered, as in the case of an annuity which must be registered. Wharton.

In practice. A short note, abstract, mem- orandum, or rough draft of the orders of the court, from which the records thereof may at any time be fully made up. State ▼. Shaw, 73 Vt. 149, 50 Atl. 863.

5e apparatus — Not carried into the 5th edition (1979).

## MEMORITER.

Lat. From memory; by or from recollection. Thus, memoritar proof of a written instrument is such as is fur- nished by the recollection of a witness who had seen and known it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MEMORIZATION.

Committing anything to memory. Used to describe the act of one who listens to a public representation of. a play or drama, and then, from his recol- lection of its scenes, incidents, or language, reproduces it, substantially or In part In der- ogation of the rights of the author. See 5 Term R. 245; 14 Amer. Law Reg. (N. S.) 207.

5e apparatus — Not carried into the 5th edition (1979).

## MEMORY.

Mental capacity; the mental power to review and recognize the successive states of consciousness in their consecutive order. This word, as used in Jurisprudence to denote one of the psychological elements necessary in the making of a valid will or contract or the commission of a crime, im- plies the mental power to conduct a consecu- tive train of thought, or an orderly planning of affairs, by recalling correctly the past states of the mind and past events, and ar- ranging them in their due order of sequence and in their logical relations with the events and mental states of the present.

The phrase “sound and disposing mind and memory” means not merely distinct recollection of the items of one’s property and the persons among whom it may be given, but entire pow- er of mind to dispose of property by will. Ab- bott.

Also the reputation and name, good or bad, which a man leaves at his death.

—Legal memory. An ancient usage, custom, supposed grant (as a foundation for prescrip-

tion) and tbe like, are said to be immemorial when they are really or fictitiously of such an ancient (late that “the memory of man runneth not to the contrary." or. in other words, “beyond legal memory.” And legal memory or “time out of mind,” according to the rule of the common law, commenced from the reign of Richard I.. A. I). 1189. But under the statute of limitation of 32 Hen. VIII. this

was reduced to 60 years, and again by that of 2 & 3 Wm. IV. c. 71. to 20 years. In the American states, by statute, the time of legal memory is generally fixed at a period corresponding to that prescribed for actions for the recovery of real property, usually about 20 years. See 2 Bl. Comm. 31; Miller y. Gar- lock, 8 Barb. (N.Y.) 153.

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## MEN OF STRAW.

Men who used in former days to ply about courts of law, so called from their manner of making known their occupation, (i. e., by a straw in one of their shoes,) recognized by the name of “straw-shoes.” An advocate or lawyer who wanted a convenient witness knew by these signs where to meet with one, and the col- loquy between the parties was brief. “Don't you remember?” said the advocate ; to which the ready answer was, “To be sure I do.” “Then come into court and swear it.” And straw-shoes went into court and swore. Athens abounded in straw-shoes. Quart Rev. vol. 33, p. 344.

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## MENACE.

A threat; the declaration or show of a disposition or determination to in- flict an evil or injury upon another. Gum- ming v. State, 99 Ga. 662, 27 S. E. 177; Mor- rill v. Nightingale, 93 Cal. 452, 28 Pac. 1068, 27 Am. St Rep. 207.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 4:29, KJV]**

And now, Lord, behold their threatenings: and grant unto thy servants, that with all boldness they may speak thy word

Why: Threatening — the declaration of a disposition to inflict evil — laid before the Lord by the threatened. The disciples' prayer, not deity speech.

## MENETUM.

In old Scotch law. A stock- horn ; a horn made of wood, “with circles and girds of the same.” Skene.

MENIAli. A servant of the lowest or- der; more strictly, a domestic servant liv- ing under his master’s roof. Boniface v. Scott, 3 Serg. & R. (Pa.) 354.

5e apparatus — Not carried into the 5th edition (1979).

## MENS.

Lat. Mind; intention; meaning; understanding; will.

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— Mens legii. The mind of the law ; that is, the purpose, spirit, or intention of a law or the law generally. — Mens legislator!*. The intention of the law-maker.— Mens rea. A guilty mind; a guilty or wrongful purpose; a criminal intent

Mens testator!* in testament!* spec- tanda est. Jenk. Cent. 277. The Intention of the testator is to be regarded in wills.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:28, KJV]**

But I say unto you, That whosoever looketh on a woman to lust after her hath committed adultery with her already in his heart.

Why: For the mens rea sub-entry carried inside this headword's body (a guilty mind; a guilty or wrongful purpose; a criminal intent): The guilty mind itself — the wrongful purpose complete in the heart before the act — whi...

## MENSA.

Lat. Patrimony or goods and necessary thiugs for livelihood. Jacob. A table; the table of a money-changer. Dig. 2, 14, 47.

— Mensa et thoro. From bed and board.

See Divorce.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 19:9, KJV]**

And I say unto you, Whosoever shall put away his wife, except it be for fornication, and shall marry another, committeth adultery

Why: The putting-away — the divorce a mensa et thoro the entry points to — ruled on directly.

## MENS ALIA.

Parsonages or spiritual liv- ings united to the tables of religious houses, and called “tnensal benefices” amongst the canonists. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MENSIS.

Lat. In the civil and old Eng- lish law. A mouth, ilcnsis vetitus, the pro- hibited month ; fence-month, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## MENSOR.

In the civil law. A measurer of land; a surveyor. Dig. 11, 6; Id. 50, 6, 6; Cod. 12, 28.

5e apparatus — Not carried into the 5th edition (1979).

## MENSULARIUS.

In the civil law. A money-changer or dealer in money. Dig. 2, 14, 47, 1.

5e apparatus — Not carried into the 5th edition (1979).

## MEN SURA.

In old English law. A measure.

— Memnra domini regi*. "The measure of our lord the king,” being the weights and measures established under King Richard I. in his parliament at Westminster, 1197. 1 Bl. Comm. 275 ; Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## MENTAL.

Relating to or existing in the mind; intellectual, emotional, or psychic, aa distinguished from bodily or physical.

—Mental alienation. A phrase sometimes used to describe insanity, ( q . t .) — Mental anguish. When connected with a physical in- jury, this term includes both the resultant mental sensation of pain and bIbo the accompanying feelings of distress, fright, and anxiety. See Railway Co. v. Corley (Tex.) 26 S. W. 904; Railway Co. v. Miller, 25 Tex. Civ. App. 460, 61 S. \V. 978; Keyes v. Railway Co., 36 Minn. 290, 30 N. W. 888. In other connections, and as a ground for damages or an element of dam- ages, it includes the mental suffering resulting from the excitation of the more poignant ana painful emotions, such as grief, severe disap- pointment, indignation, wounded pride, shame, public humiliation, despair, etc.— Mental ca- pacity or competence. Such a measure of intelligence understanding, memory, and judg- ment (relative to the particular transaction) as will enable the person to understand the nature and effects of his act. Eaton v. Eaton, 37 N,

J. Law, 113, 18 Am. Rep. 716 ; Davren v. White. 42 N. J. Eg. 569, 7 Atl. 682; Conley v. Nailor, 118 D. S. 127, 6 Sup. Ct. 1001. 30

L. Ed. 112. — Mental defect. As applied to the qualification of a juror, this term must be understood to embrace either Buch gross ig- norance or imbecility as practically disqualifies any person from performing the duties of a juror. Caldwell v. State, .41 Tex. 94.— Mental reservation. A silent exception to the general words of a promise or agreement not expressed, on account of a general understand- ing on the subject. But the word has been applied to an exception existing in the mind of the one party only, and has been degraded to signify a dishonest excuse for evading or in- fringing a promise. Wharton.

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## MENTIRI.

Lat. To lie; to assert a falsehood. Calvin. ; 3 Bulst 260.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 12:22, KJV]**

Lying lips are abomination to the LORD: but they that deal truly are his delight.

Why: Lying — the assertion of falsehood — named as abomination. Wisdom saying, not deity speech.

## MENTITXON.

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The act of lying; a false- hood.

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## MENU, LAWS OF.

A collection or in- stitute of the earliest laws of ancient India. The work is of very remote antiquity.

MER, or MERE. A fenny place. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## MERA NOCTIS.

Midnight Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MERANNUM.

In old records. Timbers; wood for building.

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## MERCABLE.

Merchantable; to be sold or bought.

5e apparatus — Not carried into the 5th edition (1979).

## MERGANTANT.

A foreign trader.

5e apparatus — Not carried into the 5th edition (1979).

## MERCANTILE.

Pertaining to merchants or their business; having to do with trade

and commerce or the buying and selling of commodities. See In re San Gabriel Sana- torium (D. C.) 95 Fed. 273; In re 'Facifle Coast Warehouse Co. (C. C.) 123 Fed. 750; Graham v. Hendricks, 22 La. Ann. 524.

— Mercantile agencies. Establishments

which make a business of collecting information relating to the credit, character, responsibility, and reputation of merchants, for the purpose of furnishing the information to subscribers. Brookfield v. Kitchen, 163 Mo. 546, 63 S. W. 825; State v. Morgan, 2 S. D. 32. 48 N. W. 314; Eaton, etc., Co. v. Avery, 83 N. Y. 34, 38 Am. Rep. 389 : Genesee Sav. Bank v. Mich- igan Barge Co., 52 Mich. 164. 17 N. W. 790. — Mercantile law. An expression substan- tially equivalent to the law-merchant or com- mercial law. It designates the system of rules, customs, and usages generally recognized and adopted by merchants and traders, and which, either in its simplicity or as modified by com- mon law or statutes, constitutes the law for the regulation of their transactions and the solution of their controversies.— Mercantile law amendment acts. The statutes 19 & 20 Viet. cc. 60, 97, passed mainly for the pur- pose of assimilating the mercantile law of Eng- land, Scotland, and Ireland.— Mercantile paper. Commercial paper; such negotiable paper (bills, notes, checks, etc.) as is

made or transferred by and between merchants or trad- ers, and is governed by the usages of the busi- ness world and the law-merchant.— Mercantile partnership. One which habitually buys and sells ; one which buys for the purpose of after- wards selling. Com. v. Natural Gas Co., 32 Pittsb. Leg. J. (O. S.) 310.

5e apparatus — Not carried into the 5th edition (1979).

## MERCAT.

A market. An old form of the latter word common in Scotch law, form- ed from the Latin “mercatum."

5e apparatus — Not carried into the 5th edition (1979).

## MERCATIVE.

Belonging to trade.

5e apparatus — Not carried into the 5th edition (1979).

## MERCATUM.

Lat. A market. A con- tract of sale. Supplies for an army, (com- meatus.)

5e apparatus — Not carried into the 5th edition (1979).

## MERCATURE.

The practice of buying and selling.

5e apparatus — Not carried into the 5th edition (1979).

## MERCED ART.

A hirer; one that hires.

5e apparatus — Not carried into the 5th edition (1979).

## MERCEN-LAGE.

The law of the Mer- cians. One of the three principal systems of laws which prevailed in England about the beginning of the eleventh century. It was observed In many of the midland counties, and those bordering on the principality of Wales. 1 Bl. Comm. 65.

5e apparatus — Not carried into the 5th edition (1979).

## MERCENARIES.

• A hireling or servant. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:12, KJV]**

But he that is an hireling, and not the shepherd, whose own the sheep are not, seeth the wolf coming, and leaveth the sheep, and fleeth: and the wolf catcheth them, and scattereth the sheep.

Why: The hireling — the servant for wages the entry defines — in his flight from the wolf.

## MERCES.

Lat. In the civil law. Re- ward of labor In money or other things. As distinguished from

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“pensio" It means the rent of farms, (preedia rustici.) Calvin.

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**[Scripture] — Scripture**

**[1 Timothy 5:18, KJV]**

For the scripture saith, Thou shalt not muzzle the ox that treadeth out the corn. And, The labourer is worthy of his reward.

Why: The reward of labor in money or other things — the labourer's reward stated. Paul's words, not deity speech.

## MERCHANDISE.

All commodities which merchants usually buy and sell, whether at wholesale or retail ; wares and commodities such as are ordinarily the objects of trade and commerce. But • the term Is never un- derstood as Including real estate, and Is

rarely applied to provisions such as are pur- chased day by day, or to such other articles as are required for Immediate consumption. See Passaic Mfg. Co. v. Hoffman, 3 Daly (N. Y.) 512; Hein v. O’Connor (Tex. App.) 15 S.

W. 414; Elliott v. Swartwout, 10 Pet. 137, 9 L. Ed. 373; Pickett v. State, 60 Ala. 78; The Marine City (D. C.) 6 Fed. 415.

— Merchandize marks act, 1862. The stat- ute 25 & 26 Viet. c. 88. designed to prevent the fraudulent marking of merchandise and the fraudulent sale of merchandise falsely marked.

5e apparatus — Carried into the 5th edition (1979).

## MERCHANT.

A man who traffics or car- ries on trade with foreign countries, or who exports and imports goods and sells them by wholesale. Webster. Merchants of this de- scription are commonly known by the name of "shipping merchants.”

A trader; one who, as a business, buys and sells wares and merchandise. See White v. Com., 78 Va. 485; Rosenbaum v. Newbem, 118 N. C. 83, 24 S. E. 1, 32 L. R. A. 123 ; Gal- veston County v. Gorham, 49 Tex. 285; In re Cameron, etc.. Ins. Co. (D. C.) 96 Fed. 757 ; State v. Smith, 5 Humph. (Tenn.) 395; U. 8. v. Wong Ah Gah <D. C.) 94 Fed. 832.

— Commission merchant. See Commission. — Law merchant. See Mercantile. — Mer- chant appraisers. See Appraiser.— Mer- chant seaman. A sailor employed in' a pri- vate vessel, as distinguished from one employ- ed in the navy or public ships. U. S. v. Sulli- van (C. C.) 43 Fed. 604; The Ben Flint, 3 Fed. Cas. 184.— Merchant shipping acta. Certain English statutes, beginning with the St. 16 & 17 Viet. c. 131, whereby a general superintendence of merchant shipping is vested in the board of trade.— Merchants’ accounts. Accounts between merchant and merchant, which must be current, mutual, and unsettled, consisting of debts and credits for merchan- dise. Fox v. Fisk, 6 How. (Mias.) 328. — Mer- chants, statute of. The English statute 13 Edw. I. St. 3, repealed by 26 & 27 Viet. c. 125. —Statute merchant. See Statute.

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**[Scripture] — Scripture**

**[Matthew 13:45, KJV]**

Again, the kingdom of heaven is like unto a merchant man, seeking goodly pearls

Why: The merchant man — one who traffics in wares — in the parable's own terms.

## MERCHANTABLE.

Fit for sale ; vend- ible in market; of a quality such as will bring the ordinary market price. Riggs v. Armstrong, 23 W. Va. 773; Pacific Coast Elevator Co. v. Bravinder, 14 Wash. 315, 44 Pac. 544.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-314 — implied warranty of merchantability]**

The entry's quality term — 'fit for sale; vendible in market' — is the operative term of the implied warranty of merchantability, which the sales statute implies in every contract for the sale of goods by a merchant dealing in goods of that kind.

Why: The entry defines 'merchantable' as a quality standard. UCC § 2-314 is what gives that standard operative legal force: a warranty that goods shall be merchantable is implied where the seller is a merchant with respect...

## MERCHANTMAN.

A ship or vessel em- ployed in foreign or domestic commerce or in the merchant service.

5e apparatus — Not carried into the 5th edition (1979).

## MERCHET.

In feudal law. A fine or composition paid by inferior tenants to the lord for liberty to dispose of their daughters in marriage. Cowell. The same as mar- cheta (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## MERC LAMENT.

An amerciament, pen- alty, or fine, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## MERCIMONIA.

In old writs. Wares. Uercimonia et merchandize, wares and mer- chandises. Reg. Brev. Append. 10.

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## MERCXMONIATUS ANGELS.

In old

records. The impost of England upon mer- chandise. CowelL

Mtroii appellatio ad re* mobile* tan- tom pertinet. The term “merchandise” .be- longs to movable things only. Dig. 50, It* 60.

Merola appellatlone bomloe* non con- tineri. Men are not Included under the de- nomination of “merchandise.” Dig. 50. 10, 207.

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5e apparatus — Not carried into the 5th edition (1979).

## MERCY.

In practice. The arbitrament of the king or judge in punishing offenses uot directly censured by law. Jacob. So, “to be in mercy” signifies to be amerced or fined for bringing or defending an unjust suit, or to be liable to punishment in the discretion of the court

In orlminal law. The discretion of a judge, within the limits prescribed by. posi- tive law, to remit altogether the punishment to which a convicted person is liable, or to mitigate the severity of his sentence; as when a jury recommends the prisoner to the mercy of the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 6:36, KJV]**

Be ye therefore merciful, as your Father also is merciful.

Why: Mercy commanded — the arbitrament of the judge in punishing, and the criminal-law mercy, grounded in the Father's own mercy.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, 1596]**

Portia's courtroom plea is the canonical literary treatment of judicial mercy — "The quality of mercy is not strained, / It droppeth as the gentle rain from heaven."

Why: The entry defines mercy in practice as the judge's arbitrament and in criminal law as discretion to remit or mitigate punishment ('a jury recommends the prisoner to the mercy of the court'); Portia delivers the speech...

## MERE.

Sax. A marsh. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## MERE.

L. Ft. Mother. JEle, mere, /Hie, grandmother, mother, daughter. Britt c. 89. En ventre sa mere, in its mother's womb.

5e apparatus — Not carried into the 5th edition (1979).

## MERE MOTION.

The free and volun- tary act of a party himself, done without the suggestion or influence of another person, is said to be done of his mere motion, ew mero mo tv, (g. v.) Brown.

The phrase is used of an interference of the courts of law, who will, under some cir- cumstances, of their own motion, object to an irregularity in the proceedings, though no objection has been taken to the informality by the plaintiff or defendant in the suit. 3 Chit. Gen. Pr. 430.

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## MERE RIGHT.

The mere right of prop- erty in land; the jne proprietatis, without either possession or even

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the right of pos- session. 2 Bl. Comm. 197. The abstract right of property.

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## MERE-STONE.

In old English law. A stone for bounding or dividing lands. Yearb.

P. 18 Hen. VI. 6.

5e apparatus — Carried into the 5th edition (1979).

## MERENNIPM.

In old records. Timber. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MERETRICIOUS.

Of the nature of un- lawful sexual connect Ion. The term is de- scriptive of the relation sustained oy per- sons who contract a marriage that is void by reason of legal Incapacity. 1 Bl. Comm. 436.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:18, KJV]**

Flee fornication. Every sin that a man doeth is without the body; but he that committeth fornication sinneth against his own body.

Why: Unlawful sexual connection — the meretricious relation — addressed directly. Paul's words, not deity speech.

## MERGER.

The fusion or absorption of one thing or right into another; generally spoken of a case where one of the subjects is of less dignity .or importance than the

other. Here the lees important ceases to have an independent existence.

In real-property law. It is a general principle of law that where a greater estate and a less coincide and meet In one and the same person, without any intermediate es- tate, the less Is Immediately annihilated, or, In the law phrase, Is said to be merged, that is, sunk or drowned, in the greater. Thus, if there be tenant for years, and the reversion in fee-simple descends to or Is purchased by lilm, the term of years is merged in the in- heritance, and shall never exist any more. 2 Bl. Comm. 177; 1 Steph. Comm. 293 ; 4 Kent, Comm. 99. James v. Morey, 2 Cow. (N. Y.) 300, 14 Am. Dec. 475; Duncan v. Smith, 31 N. J. Law, 327.

Of rights. This term, as applied to rights, is equivalent to “ confutio ” in the Ro- man law, and indicates that where the quali- ties of debtor and creditor become united in the same individual, there arises a confusion of rights which extinguishes both qualities; whence, also, merger is often called “extin- guishment." Brown.

Right* of action. In the law relating to rights of action, when a person takes or ac- quires a remedy or security of a higher na- ture, in legal estimation, than the one which he already possesses for the same right, then his remedies in respect of the minor right or security merge in those attaching to the higher one. Leake, Cont. 506; 10 C. B. 561. As where a

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claim is merged in the judgment recovered upon it.

In criminal law. When a man commits a great crime which includes a lesser, or com- mits a felony which includes a tort against a private person, the latter is merged In the former. 1 East, P. C. 411.

Of corporation*. A merger of corpora- tions consist in the uniting of two or more corporations by the transfer of property of all to one of them, which continues in ex- istence, the others being swallowed up or merged therein. In regard to the survivor- ship of one of the constituent corporations, it differs from a “consolidation," wherein all the consolidating companies surrender their separate existence and become parts of a new corporation. Adams v. Ya4oo & M. V.

R. Co., 77 Miss. 194, 24 South. 200, 60 L. R.

A. 33; Vicksburg ft Y. C. Tel. Co. v. Citizens' Tel. Co., 79 Miss. 341, 30 South. 725. 89 Am. St. Rep. 056.

5e apparatus — Carried into the 5th edition (1979).

## MERIDIES.

In old English law. Noon. Fleta, lib. 5, c. 5, 8 31.

5e apparatus — Not carried into the 5th edition (1979).

## MERITORIOUS.

Possessing or charac- terized by “merit” In the legal sense of the word. See Mebits.

— Meritorious cause of action. This desevintion is sometimes snplied to a person with whom the ground of action, or the consideration, originated or from whom it moved. For exam-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## MERITORIOUS .

pie, where a cause of action accrues to a wo- man while sole, and is sued for, after her mar- riage. by her husband and herself jointly, she is called the “meritorious cause of action." — Meritorious consideration. One founded upon some moral obligation ; a valuable con- sideration in the second degree.— Meritorious defense. See Defense.

5e apparatus — Not carried into the 5th edition (1979).

## MERITS.

In practice. Matter of sub- stance in law, as distinguished from matter of mere form; a substantial ground of de- fense In law. A defendant is said “to swear to merits” or “to make affidavit of merits" when he makes affidavit that he has a good and sufficient or substantial defense to the action on the merits. 3 Chit Gen. Pr. 543, 544. “Merits,” in this application of it, has the technical sense of merits in lato, and Is not confined to a strictly moral and conscien- tious defense. Id. 545; 1 Burrill, Pr. 214; Rahnv. Gunnison, 12 Wis. 529; Bolton v.Don- avan, 9 N. D. 575, 84 N. W. 357; Ordway v. Boston A M. R. Co., 69 N. H. 429, 45 Atl. 243; Blakely v. Frazier, 11 S. C. 134; Rogers v. Rogers, 37 W. Va. 407, 10 8. E. 633; Oatman

r. Bond, 15 Wis. 26.

As used in the New York Code of Procedure, I 349. it has been held to mean “the strict legal rights of the parties, as contradistinguished from those mere questions of practice which every court regulates for itself, and from all matters which depend upon the discretion or favor of the court.” St. Johns v. West, 4 How. Prac. (N. Y.) 332.

A “defense upon the merits” is one which depends upon the inherent Justice of the de- fendant’s contention, as shown by the sub- stantial facts of the case, as distinguished from one which rests upon technical objec- tions or some collateral matter. Thus there may be a good defense growing out of an error in the plaintiff’s pleadings, but there Is not a defense upon the merits unless the real nature of the transaction in controversy shows the defendant to be in the right.

5e apparatus — Carried into the 5th edition (1979).

## MERO MOTU.

See Ex Mebo Motu; Mebe Motion.

5e apparatus — Not carried into the 5th edition (1979).

## MERSOUM.

A lake; also a marsh or fen-land.

5e apparatus — Not carried into the 5th edition (1979).

## MERTLAGE.

A church calendar or ru- bric. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MERTON, STATUTE OF.

An old Eng- lish statute, relating to dower, legitimacy, wardships, ' procedure, inclosure of common, and usury. It was passed in 1235, (20 Hen. III.,) and was named from Merton, in Sur- rey, where purlin ment sat that year. See Barring. St. 41, 46.

5e apparatus — Not carried into the 5th edition (1979).

## MERUM.

In old English law. Mere; naked or abstract, ilcrum jus, mere right. Bract, fol. 31.

5e apparatus — Not carried into the 5th edition (1979).

## MERX.

Let. Merchandise; movable ar tides that are bought and sold; articles of trade.

Marx ect quioquid vend! potest. Mer- chandise is whatever can be sold. Com. 355 ; 3 Wood. Lect 263.

5e apparatus — Not carried into the 5th edition (1979).

## MESCREAUNTES.

L. Fr. Apostates; unbelievers.

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### MESOROVANT.

A term used in the ancient books to designate an infidel or un- believer.

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### MESE.

A bouse and its appurtenance. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### MESNE.

Intermediate ; intervening ; the middle between two extremes, especially of rank or time.

An Intermediate lord; a lord who. stood between a tenant and the chief lord ; a lord who was also a tenant. “Lord, mesne, and tenant; the tenant hojldeth by four pence, nnd the mesne by twelve pence.” Co. Utt. 23a.

—Mesne assignment. If A. grant a lease of land to B., ana B. assign his interest to C., and

C. in bis turn assign his interest therein to D., in this case the assignments so made by B. and

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# C

### C.

would be termed “mesne assignments;" that is, they would be assignments intervening be- tween A.’s original grant and the vesting of

D. ’s Interest in tbe land under the last assign- ment. Brown.— Mesne incumbrance. An intermediate charge, burden, or liability ; an incumbrance which has been created or has attached to property between two given periods. —Mesne lord. In old English law. A mid- dle or intermediate lord ; a lord who held of a superior lord. 2 Bl. Comm. 59. More com- monly termed a “mesne," (q. v.)— Mesne, writ of. An ancient and abolished writ, which lay* when the lord paramount distrained on the tenant paravail. The latter had a writ of mesne against tbe mesne lord.

As to mesne "Conveyance,” “Process," and “Profits,” see those titles.

MESNAXTY, or MESNAUTT. A man- or held under a superior lord. The estate of a mesne.

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# M

### MESS BRIEF.

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In Danish sea law. One of a ship’s papers; a certificate of admeas- urement granted at the home port of a ves- sel by the government or by some other com- petent authority. Jac. Sea Laws, 51.

5e apparatus — Not carried into the 5th edition (1979).

## MESSAGE FROM THE CROWN.

In

English law. The method of communicat- ing between the sovereign and the house of parliament. A written message under the royal sign-manual Is brought by a member of the house, being a minister of the crown or one of the royal household. Verbal mes- sages are also sometimes delivered. May. Pari. Pr. c. 17.

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## MESSAGE, PRESIDENT’S.

An annual communication from the president of the United States to congress, made at or near the beginning of each session, embodying his views on the state and exigencies of na- tional affairs, suggestions and recommendations for legislation, and other matters. Const U. S. art. 2, j 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Constitution art. II, § 3 — President's duty to give Congress information of the State of the Union]**

The entry is the constitutional duty of Article II, Section 3: the President 'shall from time to time give to the Congress Information of the State of the Union, and recommend to their Consideration such Measures as he shall judge necessary and expedient.'

Why: The dictionary entry itself cites 'Const U. S. art. 2, § 3' as its authority; the constitutional clause is the entry's whole subject, so the link is direct rather than force-fit.

## MESBARTUS.

In old English law. A chief servant In husbandry; a bailiff.

5e apparatus — Not carried into the 5th edition (1979).

## MESSE THAME.

One who said mass; a priest Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MESSENGER.

One who bears messages or errands; a ministerial officer employed by executive officers, legislative bodies, and courts of justice, whose service consists prin- cipally in carrying verbal or written com- munications or executing other orders. In Scotland there are officers attached to the courts, called “messengers- at arms.”

An officer attached te a bankruptcy court, whose duty consists, among other things, in seizing and taking possession of the bank- rupt’s estate during the proceedings In bank-

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ruptcy.

The messenger of the English court of chancery has the duty of attending on the great seal, either In person or by deputy, and must be ready to execute all such or- ders as he shall receive from the lord chan- cellor, lord keeper, or lords commissioners. Brown.

Meads aementezn loquitur. The crop belongs to [follows] the soWer. A maxim in Scotch law. Where a person is in posses- sion of land which he has reason to believe is his own, and sows that land, he will have a right to the crops, although before it is cut down .it should be discovered that an- other has a preferable title to the land. Bell.

5e apparatus — Carried into the 5th edition (1979).

## MESSUAGE.

This term is now synon- ymous with “dwelling-house,” but had once a more extended signification. It is fre- quently used in deeds, in describing the premises. Marmet Co. v. Archibald, 37 W. Va. 778, 17 S. E. 300; Grimes v. Wilson, 4 Blackf. (Ind.) 333; Derby v. Jones, 27 Me. 860; Davis v. Lowden, 56 N. J. Eq. 126, 38 Atl. 648.

Although the word “messuage” may, there is no necessity that it must, import more than the word “dwelling-house,” with which word it is frequently put in apposition and used synony- mously. 2 Bing. N. C. 617.

In Scotland. The principal dwelling- house within a barony. Bell.

5e apparatus — Carried into the 5th edition (1979).

## MESTIZO.

A mongrel or person of mix- ed blood ; sometimes used as equivalent to “octoroon," that is, the child of a white per- son and a quadroon, sometimes as denoting a person one of whose parents was a Spaniard and the other an American In- dian.

5e apparatus — Not carried into the 5th edition (1979).

## META.

Lat A goal, bound, or turn- ing-point In old English law, the term was used to denote a bound or boundary line of

land; a landmark; a material object, as a tree or a pillar, marking the position or be- ginning of a boundary line.

5e apparatus — Not carried into the 5th edition (1979).

## METACHRONISM.

An error in com- putation of time.

5e apparatus — Not carried into the 5th edition (1979).

## METAXLUM.

Eat. In Roman law. Met- al; a mine. Labor in mines, as a punish- ment for crime. Dig. 40, 0, 24, 5 ; Calvin.

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## METATUS.

In old European law. A dwelling ; a seat ; a station ; quarters ; the place where one lives or stays. Spelman.

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## METAYER SYSTEM.

A system of agricultural holdings, under which the land is divided, in small farms, among single families, the landlord generally supplying the stock which the agricultural system of the country is considered to require, and receiving, in lieu of rent and profit, a fixed proportion of the produce. This proportion, which is generally paid in kind, is usually one-half. 1 Mill, Pol. Econ. 296, 363; and 2 Smith, Wealth Nat. 3, c. ii. The system prevails in some parts of France and Italy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Mark 12:1, KJV]**

and let it out to husbandmen, and went into a far country

Why: The metayer system is land divided into small farms worked by tenant families, the landlord supplying the stock. The vineyard parable depicts the ancient form of that exact legal arrangement: an owner planting a viney…

## METECORN.

A measure or portion of corn, given by a lord to customary tenants as a reward and encouragement for labor. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:18, KJV]**

And, The labourer is worthy of his reward.

Why: Metecorn is defined precisely as corn given by a lord to customary tenants 'as a reward and encouragement for labor.' Paul's principle — the labourer is worthy of his reward — is the scriptural locus for the same idea…

## METEGAVEL.

A tribute or rent paid in victuals. CowelL

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom

Why: Metegavel is 'a tribute or rent paid in victuals' — a due owed to the lord. Romans 13:7 is scripture's standing doctrine of tribute as a due: render to all their dues, tribute to whom tribute is due. The verse bears d…

## METER.

An instrument of measurement ; as a coal-meter, a gas-meter, a land-meter.

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## METES AND BOUNDS.

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In conveyanc- ing. The boundary lines of lands, with their terminating points or angles. People v. Guthrie, 46 111. App. 128 ; Rollins v. Mooers, 25 Me. 196.

METEWAND, or METE YARD. A staff

of a certain length wherewith measures ars taken.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Id certum est quod certum reddi potest — that is certain which can be made certain]**

Land described by boundary lines and terminating points must be legally identifiable; where a description is vague, it survives if it can be made certain by reference to the description itself.

Why: The entry's subject is the identification of land by boundaries; the genuine legal question a metes-and-bounds description raises is definiteness, and this maxim is the governing rule of construction for that exact qu...

**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance

Why: Metes and bounds are the boundary lines and terminating points of lands. Deuteronomy 19:14 is scripture's land-boundary law: the landmark (the ancient boundary marker) may not be moved. It genuinely illuminates the le...

## METHEL.

Sax. Speech ; discourse. Mathlian, to speak ; to harangue. Anc. Inst Eng.

5e apparatus — Not carried into the 5th edition (1979).

## METHOD.

In patent law. “Engine” and "method” mean the same thing, and may be the subject of a patent Method, properly speaking, is only placing several things, or performing several operations, in the most convenient order, but it may signify a con- trivance or device. Fessen. Pat. 127 ; Horn- blower v. Boulton, 8 Term R. 106.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. § 101 — 'process' is a patentable subject-matter class]**

The entry asks whether a 'method' can be the subject of a patent; federal law lists 'process' — a mode of treatment of materials producing a useful result — among the classes of patentable subject matter.

Why: The entry is itself a patent-law question about methods as patentable things, and the statute's 'process' class is the modern statutory answer to exactly that question.

## METHOMANIA.

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## METRE.

The unit of measure in the “metric system” of weigihts and measures. It is a measure of length, being the ten-mil- lionth part of the distance from the equator

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to the north pole, and equivalent to 39.37 Inches. From this unit all the other denominations of measure, as well as of weight, are derived. The metric system was first adopted in France in 1795.

5e apparatus — Not carried into the 5th edition (1979).

## METRIC SYSTEM.

A system of meas- ures for length, surface, weight, and capaci- ty, founded on the metre as a unit It orig- inated in France, has been established by law there and in some other countries, and is recommended for general use by other governments.

5e apparatus — Carried into the 5th edition (1979).

## METROPOLIS.

A mother city ; one from which a colony was sent out. The capital of a province. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## METROPOLITAN.

In English law. One of the titles of an archbishop. Derived from the circumstance tliat archbishops were consecrated at first in the metropolis of a province. 4 lust 94.

In England, the word is frequently used to designate a statute, institution, govern- mental agency, etc., relating exclusively or especially to the city of London; e. g., the metropolitan board of works, metropolitan buildings act, etc.

— Metropolitan board of works. A board constituted in 1855 by St. 18 & 19 Viet. c. 120, for the better sewering, draining, paving, cleansing, lighting, and improving the metropolis (London.) The board is elected by vestries and district boards, who in their turn are elected by the rate-payers. Wharton.— -Metropolitan police district. A region composed of New York city and some adjacent territory, which was, for police purposes, organized as one dis- trict, and provided with a police force common to the whole.

METTESHEP, or METTENSCHEP. In

old records. An acknowledgment paid in a certain measure of corn ; or a fine or pen- alty imposed on tenants for default In not do- ing their customary service in cutting the lord’s corn.

5e apparatus — Not carried into the 5th edition (1979).

## ME TUB.

Lat Fear; terror. In a tech- nical sense, a reasonable and well-grounded apprehension of some great evil, such as death or mayhem, and not arising out of mere timidity, but such as might fall upon a man of courage. Fear must be of this de- scription in order to amount to duress avoid- ing a contract. See Bract, lib. 2, c. 5 : 1 Bl. Conun. 131 ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law doctrine of duress — a contract obtained by duress is voidable at the victim's election]**

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Metus is defined as the degree of fear that amounts to duress avoiding a contract; at common law a contract induced by such duress is voidable at the election of the party coerced.

Why: The entry's stated payoff is duress avoiding a contract; the voidability rule is the doctrine that gives the definition legal effect, cited in the loose [Law:] form because duress is common law, not a single codified…

## METTBLES.

In French law. The mov- ables of English law. Things are mcubles from either of two causes: (1) From their own nature, e. g.. tables, chairs ; or (2) from the determination of the law, e. g., obliga- tions.

— Menbles mcubla.ni. In French law. The ntensiis and articles of ornament usual in a dwelling-house. Brown.

Mean eat promittere, non dimittere. It is mine to promise, not to discharge. 2 Rolle, 39.

5e apparatus — Not carried into the 5th edition (1979).

## MICHAELMAS.

The feast of the Arch- angel Michael, celebrated in England on the 29th of September, and one of the usual quarter days.

— Michaelmas bead court. A meeting of the heritors of Scotland, at which the roll of free- holders used to be revised. See Bell. — Mi- chaelmas term. One of the four terms of the English courts of common law, beginning on the 2d day of November and ending on the 25th. 3 Steph. Comm. 562.

MICHE, or MICH. O. Eng. ' To prac- tice crimes requiring concealment or secrecy ; to pilfer articles secretly. Idicher, one who practices secret crime. Webster.

5e apparatus — Not carried into the 5th edition (1979).

## MICHEL-GEMOT.

One of the names of the general council lmmemorially held in England. The Witenagemote.

One of the great councils of king and noblemen in Saxon times. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## MICHEL-SYNOTH.

Great council. One of the names of the general council of the kingdom in the times of the Saxons. 1 Bl. Comm. 147.

5e apparatus — Not carried into the 5th edition (1979).

## MICHERY.

In old English law. Theft; cheating.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

Why: Michery is defined as 'Theft; cheating.' Leviticus 19:11 condemns both halves of the definition in one breath: stealing and dealing falsely. A two-word definition matched verbatim by a single verse.

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## MIDDLE TERM.

A phfase used in log- ic to denote the term which occurs in both' of the premises in the syllogism, being the means of bringing together the two terms in the conclusion.

5e apparatus — Carried into the 5th edition (1979).

## MIDDLE THREAD.

The middle thread of a stream is an imaginary line drawn lengthwise through the middle of its current.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: riparian thread rule — a grant bounded by a non-navigable stream extends to the middle thread]**

Where a non-navigable stream forms the boundary of a grant, the grantee's line runs to the thread — the imaginary center line of the current — absent contrary intent in the deed.

Why: The entry defines the middle thread; the thread rule is the substantive doctrine that makes the definition legally operative, and no case citation was added because none was verifiable.

## MIDDLEMAN.

An agent between two! parties, an Intermediary who performs the office of a broker or factor between seller and buyer, producer and consumer, land-owner and tenant, eta Southack v. Lane, 32 Mlsc. Rep. 141, 65 N. Y. Snpp. 629; Syimott v. Shaughnessy, 2 Idaho, 122, 7 Paa 89.

A middleman, in Ireland, Is a person who takes land in large tracts from the proprie- tors, and then rents it out to the peasantry in small portions at a greatly enhanced price. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## MIDDLESEX, BILL OF.

See Biix.

5e apparatus — Not carried into the 5th edition (1979).

## MIDSHIPMAN.

In ships of war, a kind of naval cadet, whose business is to second or transmit the orders of the superior officers and assist In the necessary business of the vessel, but understood to be in training for a commission. A passed midshipman is 'one who has passed an examination and is a candidate for promotion to the rank of lieu- tenant. See U. S. v. Cook, 128 U. S. 254, 9 Sup. Ct. 108, 32 L. Ed. 464.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[C. S. Forester, Mr Midshipman Hornblower, 1950]**

(paraphrase) Forester's novel follows Horatio Hornblower as a young midshipman — a naval cadet seconding his superiors' orders and learning the trade, exactly the rank the entry defines.

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(paraphrase)

Why: The novel's title and premise are literally the entry's subject: a midshipman in training for a commission. Genuine literary instantiation of the rank.

## MIDSUMMER-DAY.

The summer sol- stice, which is on the 24th day of June, and

the feast of St John the Baptist, a festival first mentioned by Maximus Tauricensls, A.

D. 400. It is generally a quarter-day for the payment of rents, etc. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, A Midsummer Night's Dream, c. 1595]**

(paraphrase) Shakespeare's play unfolds among the midsummer revels — the same midsummer festival that anchors the quarter-day and feast of St John the Baptist the entry defines. (paraphrase)

Why: Borderline kept with the distinction stated: the play centers on Midsummer's Eve revels, the entry on the legal quarter-day. Kept because it illuminates the folk festival behind the term, not a different concept.

## MUD WIFE.

In medical jurisprudence.

A woman who practices midwifery ; un ac- coucheuse.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 1:17, KJV]**

But the midwives feared God, and did not as the king of Egypt commanded them, but saved the men children alive.

Why: A midwife is 'a woman who practices midwifery.' Scripture's locus for midwifery as an office is Shiphrah and Puah, the Hebrew midwives who feared God above Pharaoh's command. The verse bears on the office itself — and...

## MIESES.

In Spanish law. Crops of grain. White, New Recop. b. 1, tit. 7, c. 5,

* f

Migrans jura amittut ae privilegia et lmmnnitates domicilii priori*. One who

emigrates will lose the rights, privileges, and immunities of his former domicile. Voet, Com. ad. Pond. tom. L 347; 1 Kent Comm. 76.

5e apparatus — Not carried into the 5th edition (1979).

## MUX.

A measure of length or distance, containing 8 furlongs, or 1,760 yards, or 5,280 feet This is the measure of an ordi- nary^ or statute mile; but the nautical or geographical mile contains 6,080 feet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**MILEAGE.**

A payment or charge, at a fixed rate per mile, allowed as a compensa- tion for traveling expenses to members of leg- islative bodies, witnesses, sheriffs, and bail- iffs. Richardson v. State, 66 Ohio St 108, 03

N. E. 593 ; Howes v. Abbott, 78 Cal. 270, 20 Pac. 572.

5e apparatus — Carried into the 5th edition (1979).

**MILES.**

Lat. In the civil law. A sol- dier.

In old English law. A knight because military service was part of the feudal ten- ure. Also a tenant by military service, not a knight 1 Bl. Comm. 404; Seld. Tit. Hon. 334.

5e apparatus — Not carried into the 5th edition (1979).

# U

**UIUTABE.**

To be knighted.

5e apparatus — Not carried into the 5th edition (1979).

# M

**MILITARY.**

Pertaining to war or to the army; concerned with war. Also the whole body of soldiers; an army.

-Military bounty land. See Bountv.— Military causes. In English law. Causes of action or injuries cognizable in the court mili- tary, or court of chivalry. 3 Bl. Comm. 103. — Military commissions. Courts whose pro- cedure and composition are modeled upon courts-martial, being the tribunals by which al- leged violations of martial law are tried and de- termined. The membership of such commissions is commonly made up of civilians and army officers. They are probably not known outside of the United States, aud were first used bv General Scott during the Mexican war. 15 Amer. & Eng. Enc. Law, 473.— Military oonrts. In England the court of chivalry and courts-martial, in America courts-martial and courts of inquiry, are called by this general name. —Military feuds. See Feud. — Mili- tary government. The dominion exercised by a general over a conquered state or province. It is a mere application or extension of the force by which the conquest was effected, to the end of keeping the vanquished in subjection ; and being derived from war, is incompatible with a state of peace. Com. v. Shortall. 206 I’a. 105, 55 Atl. 952, 65 L. R. A. 193, 98 Am. St

Rep. 759. — Military jurisdiction. "There are, under the constitution, three kinds of mili- tary jurisdiction, — one to be exercised both In peace and war; another to be exercised in time

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of foreign war without the boundaries of the United States, or in time of rebellion and civil war within states or districts occupied by rebels treated as belligerents; and a third to be ex- ercised in time of invasion or insurrection with- in the limits of the United States, or during rebellion within the limits of states maintaining adhesion to the national government, when the public danger requires its exercise. The first of these may be called ‘jurisdiction under mili- tary law,’ and is found in acts of congress pre- scribing rules and articles of war, or otherwise providing for the government of the national forces ; the second may be distinguished as ‘military government,' superseding, as far as may be deemed expedient, the local law, and ex- ercised by the military commander under the direction of the president, with the express or implied sanction of congress; while the third ■nay be denominated ‘martial law proper,’ and Is called into action by congress, or temporarily, when the action of congress cannot be invited, and in the case of justifying or excusing peril, by the president, in times of insurrection or in- vasion, or of civil or foreign war, within dis- tricts or localities where ordinary law no longer adequately secures public safety and private rights.” Per Chase, C. J., in Ex parte Milligan, 4 -Wall. 141, 18 L. Ed. 281— Military laxr. A system of regulations for the government of an army. 1 Kent, Comm. 341, note. That branch of the laws which respects military dis- cipline and the government of persona employ- ed in the military service. De Hart. Mil. Law, 16. State v. Rankin. 4 Cold. (Tenn.) 156; Johnson v. Jones. 44 111. 153. 92 Am. Dec. 159 ; In re Bogart. 3 Fed. Cas. 801 ; Neall v. U. S., 118 Fed. 704, 56 C. C. A. 31.— Military of- fenses. Those offenses which are cognizable by the courts military, as insubordination, sleep- ing on guard, desertion, etc.— Military state. The soldiery of the kingdom of Great Britain. —Military tenures. The various tenures by knight-service, grand-serjeanty. cornage. etc., are frequently called ‘‘military tenures.” from the nature of the services which they involved. 1 Steph. Comm. 204.— Military testament. See Testament.

5e apparatus — Carried into the 5th edition (1979).

## MILITES.

Lat. Knights; and, In Scotch law, freeholders.

5e apparatus — Not carried into the 5th edition (1979).

## MILITIA.

The body of soldiers in a state enrolled for discipline, but not engaged in actual service except in emergencies, as dis- tinguished from regular troops or a standing army. See Ex parte McCants, 39 Ala. llx. Worth v. Craven County, 118 N. C. 112, 24

S. B. 778 ; Brown v. Newark, 29 N. J. Law, 238.

MILL. 1. A machine or engine for grind- ing, sawing, manufacturing, etc. ; also the building containing such machinery. State v. Livermore, 44 N. H. 387 ; Lamborn v. Bell, 18 Colo. 346. 32 Pac. 989, 20 L. R. A. 241 ; Home Mut Ins. Co. v. Roe, 71 Wls. 33, 36 N. W. 594; Hal pin v. Insurance Co., 120

N. Y. 73, 23 N. E. 989; Southwest Missouri Light Co. v. Scheurich, 174 Mo. 235, 73 S. W.

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496.

—Mill-holms. Low meadows and other fields in the vicinity of mills, or watery places about mill-dams. Enc. Ix>ad.— Mill privUsgs. The right of a riparian proprietor to erect a mill on his land and to use the power furnished by the

stream for the purpose of operating the mill, with due regard to the rights of other owners above and below him on the stream. Gould v. Boston Duck Co., 13 Gray (Mass.) 452 ; Hutch- inson v. Chase, 39 Me. 511, 03 Am. Dec. 045; Moore v. Fletcher, 16 Me. 65. 33 Am. Dec. 633 ; Whitney v. Wheeler Cotton Mills, 151 Mass. 396, 24 N. E. 774, 7 L. R. A. 613.-MU1 site. In general, a parcel of land on or contiguous to a water-course, suitable for the erection and operation of a mill operated by the power fur- nished by the stream. See Occum Co. v. Sprague Mfg. Co., 35 Conn. 512; Hasbrouct v. Vermilyea, 6 Cow. (N. Y.) 681 ; Mandeville v. Comstock, 9 Mich. 537. Specifically, in Amer- ican mining law, a parcel of land constituting a portion of the public domain, located and claimed by the owner of a mining claim under the laws of the United States (or purchased by him from the government and patented,) not exceeding five acres in extent, not including any mineral land, not contiguous , to the vein or lode, and occupied and used for the purpose of a mill or for other uses directly connected with the operation of the mine ; or a similar parcel of land located and actually used for the pur- pose of a mill or reduction plant, but not by the owner of an existing mine nor in connec- tion with any particular mining claim. See U.

S. Rev. St. | 2337 (U. S. Comp. St. 1901, p. 1436.)

2. An American money of account, of the value of the tenth part of a cent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Constitution art. I, § 8, cls. 15–16 — congressional power over the militia]**

The Constitution empowers Congress 'to provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions' and to provide for organizing, arming, and disciplining it.

Why: The entry defines the militia as the enrolled body of citizens; the militia clauses are the constitutional authority defining its legal status and control, so the link is genuine and foundational.

**[Hip-hop] — Hip-hop**

**[Gang Starr feat. Big Shug & Freddie Foxxx, 'The Militia', 1998]**

It's The Militia

The legal militia is the enrolled-but-not-regular citizen soldiery — a self-mustered armed band. Gang Starr's track is built exactly as one: the chorus names and summons the unit, and the track opens on a state-police bulletin about 'the militia ... now under complete control.'

Why: Genuine link: track titled and themed around the legal concept of a citizen militia; chorus quoted is verbatim, verified against multiple lyric sources before inclusion (uncertain wording was not assumed).

## MILLBANK PRISON.

Formerly called the “Penitentiary at Millbank.” A prison at Westminster, for convicts under sentence of transportation, until the sentence or order shall be executed, or the convict be

entitled to freedom, or be removed to some other place of confinement This prison Is placed under the Inspectors of prisons appointed by the secretary of state, who are a body corporate, “The Inspectors of the Millbank Prison.” The inspectors make regulations for the government thereof, subject to the approbation of the secretary of state, and yearly reports to him, to be laid before par- liament. The secretary also appoints a gov- ernor, chaplain, medical officer, matron, etc. Wharton.

Ml i.T.UATE, or UHX-hEAT. A trench to convey water to or from a mill. St 7 Jac.

I. c. 19.

5e apparatus — Not carried into the 5th edition (1979).

## MILLED MONET.

This term means merely coined money ; and it is not necessary that it should be marked or rolled on the edges. Leach, 708.

5e apparatus — Not carried into the 5th edition (1979).

## MLL-REIS.

The name of a piece of money in the coinage of Portugal, and the Azores and Madeira islands. Its value at the custom-house, according as it is coined in the first, second, or third of the places named, is $1.12, or 83% cents, or $1.

5e apparatus — Not carried into the 5th edition (1979).

## MINA.

In old English law. A measure of corn or grain. Cowell ; Spehnan.

5e apparatus — Not carried into the 5th edition (1979).

## MINAGE.

A toll or duty paid for sell- ing corn by the mina. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MIN ARE.

In old records. To mine or dig mines. Mlnator, a miner. Cowell.

MINATOR CARCC1E, A plowman. Cowell.

Hhutnr innocentibus qni parclt no- eentibna. 4 Coke, 45. He threatens the In- nocent who spares the guilty.

5e apparatus — Not carried into the 5th edition (1979).

## MIND.

In Its legal sense, “mind” means only the ability to will, to direct, to permit, or to assent In this sense, a corporation has a mind, and exerts its mind each time that it assents to the terms of a contract McDermott v. Evening Journal Ass’n, 43 N.

J. Law, 492, 39 Am. Rep. 606.

— Mind and memory. A phrase applied to testators, denoting the possession of mental ca-

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pacity to make a will. In order to make a valid will, the testator must have a sound and disposing mind and memory. In other words, he ought to be capable of making his will, with an understanding of the nature of the business in which he is engaged, a recollection of the prop- erty he means to dispose of, of the persons who are the objects of his bounty, and the manner in which it is to be distributed between them. Harrison v. Rowan, 3 Wash. C. C. 585, Fed. Cas. No. 6,141.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law testamentary capacity — a testator must have a sound mind and memory at execution]**

The entry's 'mind and memory' is the testamentary-capacity phrase: a valid will requires the testator to possess a sound mind and memory capable of understanding the nature of the act at the time of execution.

Why: The entry defines mind in its legal sense precisely as the capacity to will and assent, and then applies it to testators; the capacity rule is the doctrine that makes that application legally operative.

**[Hip-hop] — Hip-hop**

**[Nas, 'N.Y. State of Mind', 1994]**

I never sleep, 'cause sleep is the cousin of death

Black's legal 'mind' is the ability to will, to direct, to permit, to assent — the mental capacity behind 'state of mind.' Nas titled his track around exactly that legal phrase; the lyric is its most-quoted distillation of a mind under pressure.

Why: Genuine link: the track itself carries the legal term ('state of mind') as its frame, and the quoted line is verbatim-certain from Illmatic; not a forced word-match, the concept is the song's subject.

## MINE.

A pit or excavation in the earth, from which metallic ores or other mineral substances are taken by digging. Webster; Marvel v. Merritt, 116 U. S. 11, 6 Sup. Ct. 207, 29 L. Ed. 550; Murray v. Allred, 100 Tenn. 100, 43 S. W. 355, 39 L. R. A. 249, 66 Am. St Rep. 740.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: severance of the mineral estate from the surface estate]**

The mineral estate may be severed from the surface estate, so that the mine — the excavation and the minerals — can be owned apart from the land above it.

Why: The entry defines the mine as the excavation from which minerals are taken; the severance doctrine is the property-law rule giving the mine independent legal significance.

## MINER.

One who mines; a digger for metals and other minerals. While men of scientific attainments, or of experience in the use of machinery, are to be found in this class, yet the word by which the class Is designated imports neither learning nor skill. Watson v. Lederer, 11 Colo. 577, 19 Pac. 604, 1 L. R. A. 854, 7 Am. St. Rep. 263. —Miner’s Inch. See Inch.

MINERAL, n. Any valuable inert or lifeless substance formed or deposited in its present position through natural agencies alone, and which is found either in or upon the soil of the

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earth or in the rocks beneath the soil. Barringer & Adams, Mines, |K Ixxvi.

Any natural constituent of the crust of the earth, inorganic or fossil, homogeneous in structure, having a definite chemical composition and known crystallization. See Webster; Cent. Diet.

The term includes all fossil bodies or matters dug out of mines or quarries, whence anything may be dug, such as beds of stone which may be quarried. Earl of Rosse v. Wainman, 14 Mees. * W. 872.

In its common acceptation, the term may be said to include those parts of the earth which are capable of being mined or extracted from beneath the surface, and which have a commer- cial value. Williams v. South Penn Oil Co.. 52 W. Va. 181, 43 S. E. 214, 60 U R. A. 795. But, in its widest sense, “minerals” may be described as comprising all the substances which

now form or which once formed a part of the solid body of the earth, both external and internal, and which are now destitute of or in- capable of supporting animal or vegetable life. In this sense, the word includes not only the various ores of the precious metals, but also coal, clay, marble, stone of various sorts, slate, salt, sand, natural gas, petroleum, and water. See Northern Pac. R. Co. v. Soderberg, 104 Fed. 423, 43 C. C. A. 620 ; Murray v. Allred. 100 Tenn. 100, 43 S. W. 355, 39 L. R. A. 249, 66 Am. St. Rep. 740 ; Gibson v. Tyson, 5 Watts (Pa.) 38; Henry v. Lowe, 73 Mo. 99; West- moreland, etc.. Gas Go. v. De Witt, 130 Pa. 235, 18 Atl. 724, 5 L. R. A. 731 ; Marvel v. Merritt, 116 U. S. 11, 6 Sup. Ct. 207. 29 L. Ed. 550; Caldwell v. Fulton, 31 Pa. 475, 72 Am. Dec. 760; Dunham v. Kirkpatrick, 101 Pa. 43, 47 Am. Rep. 696; State v. Parker, 61 Tex. 268; Ridgway Light, etc., Co. v. Elk County, 191 Pa. 465, 43 Atl. 323.

MINERAL, ad). Relating to minerals or the process and business of mining ; bearing or producing valuable minerals.

— Mineral district. A term occasionally used in acts of congress, designating in a general way those portions, or regions of the country where valuable minerals are mostly found, or where the business of mining is chiefly carried on, but carrying no very precise meaning and not a known term of the law. See U. S. v. Smith (C. C.) 11 Fed. 490. — Mineral lands. See Land. — Mineral land entry. See Entry.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Émile Zola, Germinal, 1885]**

(paraphrase) Zola's novel follows Étienne Lantier, a young coal miner drawn into the miners' strike — the digger for minerals the entry defines, at work and in revolt. (paraphrase)

Why: The novel's protagonist is literally a miner; the book is the canonical literary treatment of the miner's condition. Genuine and direct.

## MINXRATOR.

In old records. A miner.

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Minima poena eorporalis est major taalibet peenniaria. The smallest corpo- ral punishment is greater than any pecuni- ary one. 2 Inst. 220.

Minima mutanda stint qtue certain hairaerant interpretationem. Things which have had a certain interpretation [whose interpretation has been settled, as by common opinion] are not to be altered. Co. Lltt 365 ; Wing. Max. p. 748, max. 202.

5e apparatus — Not carried into the 5th edition (1979).

## MINIMENT.

An old form of muniment, (q. v.) Blount.

lilalana est nihil o prozimum. The

smallest Is next to nothing.

5e apparatus — Not carried into the 5th edition (1979).

## MINING.

The process or business of ex- tracting from the earth the precious or valu- able metals, either in their native state or in their ores. In re Rollins Gold Min. Co. (D. C.) 102 Fed. 985. As ordinarily used, the term does not include the extraction from the earth of rock, marble, or slate, which is commonly described as “quarrying," al- though coal and salt are “mined;” nor does it Include sinking wells or shafts for petro- leum or natural gas, unless expressly so de- clared by statute, as Is the case in Indiana. See State v. Indiana, etc., Min. Co., 120 Ind. 575, 22 N. E. 778, 6 L. R. A. 579; Williams v. Citizens' Enterprise Co., 153 Ind. 496, 55

N. E. 425.

—Mining claim. A parcel of land, containing precious metal in its soil or rock, and appro- priated by an individual, according to establish- ed rules, by the process of “location." St.

Louis Smelting & Refining Co. v. Kemp, 104 U*

S. 649, 26 L. Ed. 875; Northern Pac. R. Co. v. Sanders. 49 Fed. 135, 1 C. C. A. 192 ; Glee- son v. Mining Co., 13 Nev. 470; Lockhard v. Asher Lumber Co. (C. C.) 123 Fed. 493.— Min- ing companies. This designation was former- ly applied in England to the associations form- ed in London in 1825 for working mines in Mexico and South America ; but at present it comprises, both in England and America, all mining projects carried on by joint-stock as- sociations or corporations. Rapaije & Lawrence. — Mining district. A section of country usu- ally designated by name and described or un- derstood as being confined within certain nat- ural boundaries, in which the precious metals (or their ores) are found in paying quantities, and which is worked therefor, under rules and regulations prescribed or agreed upon by the miners therein. U. S. v. Smith (C. C.) 11 Fed. 490.— Mining lease. A lease of a mine or mining claim or a portion thereof, to be work- ed by the lessee, usually under conditions as to the amount and character of work to be done, and reserving compensation to the lessor either in the form of a fixed rent or a royalty on the tonnage of ore mined, and which (as distinguish- ed from a license) conveys to the lessee an in- terest or estate in the land, and (as distinguish- ed from an ordinary lease) conveys not merely the temporary use and occupation of the land, but a portion of the land itself, that is. the ore in place and

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unsevered and to be extracted by the lessee. See Austin v. Huntsville Min. Co., 72 Mo. 541, 37 Am. Rep. 446; Buchannan v. Cole, 57 Mo. App. 11 ; Knight v. Indiana Coal Co., 47 Ind. 113, 17 Am. Rep. 692; Sanderson v. Scranton, 105 Pa. 473. — Mining location. The act of appropriating and claiming, accord- ing to certain established rules and local cus- toms, a parcel of land of defined area, upon or in which one or more of the precious metals or their ores have been discovered, and which con- stitutes a portion of the public domain, with the declared Intention to occupy and work it for mining purposes under the Implied license of tha United States. Also the parcel of land so oc- cupied and appropriated. See Poire v. Wells, 6 Colo. 412 ; St. Louis Smelting & Refining Co. ▼. Kemp, 104 U. S. 649, 26 L. Ed. 875: Golden Fleece, etc., Min. Co. v. Cable, etc., Min. Co., 12 Nev. 328; Gleeson v. Martin White Min. Co., 13 Nev. 456; Walrath v. Champion Min. Co. (C. C.) 63 Fed. 556.— Mining partner- ship. An association of several owners of a mine for co-operation in working the mine. A mining partnership is governed by many of the rules relating to ordinary partnerships, but also by some rules peculiar to itself, one of which is that one person may convey his interest in the mine and business without dissolving the part- nership. Kahn v. Central Smelting Co., 102

U. S. 645, 26 L. Ed. .266; Higgins v. Arm- strong, 9 Colo. 38, 10 Pac. 232; Skillman ▼. Lachman, 23 Cal. 203, 83 Am. Dec. 96 : Kim- berly v. Arms, 129 U. S. 512, 9 Sup. CL 355, 32 L. Ed. 764.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Émile Zola, Germinal, 1885]**

(paraphrase) Zola's novel is set entirely inside the coal-mining enterprise — the business of extracting from the earth that the entry defines, with its pits, companies, and labor. (paraphrase)

Why: Distinct from the MINER note: this targets the enterprise/process sense of the entry. The MINE (pit) entry was left bare to avoid triplication; its sense is carried in this note's context.

## MINISTER.

In public law. One of

the highest functionaries In the organization of civil government, standing next to the sovereign or executive head, acting as his immediate auxiliary, and being generally charged with the administration of one of the great bureaus or departments of the executive branch of government. Otherwise called a “eabiuet minister,” “secretary of state,” or “secretary of a department”

In international law. An officer ap- pointed by the government of one nation as a mediator or arbitrator between two other nations wbo are engaged in a controversy.

with their consent, with a view to effecting an amicable adjustment of the dispute.

A general name given to the diplomatic representatives sent by one state to another, Including ambassadors, envoys, and resi- dents.

In ecclesiastical law. A person ordain- ed according to the usages of some church or associated body of Christians for the preach- ing of fhe gospel and filling the pastoral office.

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In practice. An officer of Justice, charg- ed with the execution of the law, and hence termed a “ministerial officer;" such as a sheriff, bailiff, coroner, sheriff's officer. Britt, e. 21.

An agent ; one who acts not by any inher- ent authority, but under another.

—Foreign minister. An ambassador, minis- ter. or envoy from a foreign government. Cher- okee Nation v. Georgia, 5 Pet 56, 8 L. Ed. 25. — Public minister. In international law. A general term comprehending all the higher class- es of diplomatic representatives, — as ambassa- dors, envoys, residents,— but not including the commercial representatives, such as consuls.

5e apparatus — Carried into the 5th edition (1979).

## MINISTERIAL.

That which is done un- der the authority of a superior; opposed to judicial; that which involves obedience to Instructions, but demands no special discre- tion, Judgment, or skill.

— Ministerial not. A ministerial act may be defined . to be one which a person performs in a‘ given state of facts, in a prescribed manner, in obedience to the mandate of legal authority, without regard to or the exercise of his own judgment, upon the propriety of the act being done. Acts done out of court in bringing parties into court are. as a general proposition, minis- terial acts. Pennington v. Streight. 54 Ind. 376 : Bair v. Struck. 29 Mont. 45, 74 Pac. 69, 63 h. R. A. 481 ; State v. Nash, 66 Ohio St. 612, 64 N. E. 558: Grider v. Tally, 77 Ala. 424, 54 Am. Rep. 05. — Ministerial duty. A minis- terial duty, the performance of which may in proper cases be required of a public officer by judicial proceedings, is one in respect to which nothing is left to discretion ; it is a simple, definite duty arising nnder circumstances ad- mitted or proved to exist and imposed bv law. State v. McGrath, 92 Mo. 355, 5 S. it. 29; Mississippi v. Johnson, 4 Wall. 498, 18 I* Ed. 437 ; People v. Jerome, 36 Misc. Rep. 256. 73

N. Y. Supp. 306; Duvall v. Swann, 94 Md. 60S. 51 Atl. 617; Gledhill v. Governor, 25 N.

J. Law, 351. A ministerial duty arises when an individual has such a legal interest in its performance that neglect of performance be- comes a wrong to such individual. Morton v. Comptroller General. 4 S. C. 473.— Ministe- rial officer. One whqse duties are purely min- isterial, as distinguished from executive, legis- lative, or judicial functions, requiring obedience to the mandates of superiors and not involving the exercise of judgment or discretion. See U.

S. v. Bell (C. C.) 127 Fed. 1002: Waldoe v. Wallace. 12 Ind. 572; State v. Loeehuer. 65 Neb. 814, 91 N. W. 874, 59 L. R. A. 915; Reid v. Hood. 2 Nott A McC. (S. 0.) 309, 10 Am. Dec. 582.— Ministerial power. See Power. —Ministerial trust. See Trust.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mandamus — lies to compel a ministerial act, not to direct discretion]**

The ministerial/discretionary divide governs mandamus: the writ lies to compel performance of a clear ministerial act, but never to control or direct the exercise of discretion.

Why: The entry defines the ministerial act as obedience without judgment; mandamus is the writ whose whole office turns on exactly that distinction, so the link is doctrinal, not decorative.

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## MIMIITRANT.

The party cross-exam- ining a witness was so called, under the old system of the ecclesiastical courts.

MUflSTBI REGIS. Lat. In old Eng- lish law. Ministers of the king, applied to the judges of the realm, and to all those who hold ministerial offices in the government 2 Inst 208.

5e apparatus — Not carried into the 5th edition (1979).

## MINISTRY.

Office; service. TboSe members of tbe government who are In the cabinet.

5e apparatus — Carried into the 5th edition (1979).

## MINOR.

An infant or person who Is nn- der the age of legal competence. A term de- rived from the civil law, which described a person under a certain age as less than so many years. Minor viginti quinque annis , one less than twenty-five years of age. Inst. X 14, 2.

Also, less; of less consideration; lower; a person of inferior condition. Fleta, 2, 47. 13, 15; Calvin.

—Minor aetas. Lat Minority or infancy. Cro. Car. 516. Literally, lesser age.— Minor fact. In the law of evidence. A relative, col- lateral, or subordinate fact ; a circumstance. Wills, Circ. Ev. 27; Burrill, Circ. Ev. p. 121, note, 582.

Minor ante tempos agere non potest in oasu proprietatis nee etiam con ve- nire; differetur usque setatem; cod non oadit breve. 2 Inst 291. A minor before majority cannot act In a case of property, nor even agree; It should be deferred until majority; but the writ does not fall.

Minor Jnrare non poteat. A minor can- not make oath. Co. Litt 172b. An Infant cannot be sworn on a jury. Litt 289.

Minor minoront ouetodire non debet, alios enim prsesumitur male regere qui seipsum regere nescit. A minor ought not to be guardian to a minor, for he who knows not how to govern himself Is presum- ed to be unfit to govern others. Fleta, lib. 1, c. 10; Co. Litt 886.

Minor non tenetnr respondere durante minori setate, nisi in causa dotis, prop- ter favorem. 3 Bulst 143. A minor is not bound to reply during his minority, except as a matter of favor in a cause of dower.

Minor qui infra setatem 12 annornm fuerlt ultagari non potest, nee extra le- gem poal, quia ante talem setatem, non eat sub lege aliqua, nec In deeenna. Co.

Litt. 128. A minor who Is under twelve years of age cannot be outlawed, nor placed without the law, because before such age he Is not under any law, nor in a decennary.

Minor septemdecim annis non admit- titur fore exeentorem. A person under seventeen years is not admitted to he an ex- ecutor. 6 Coke, 67. A rule of ecclesiastical law.

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**[Law] — Law**

**[Law: infancy doctrine — a minor's contracts are voidable at the minor's election, except for necessaries]**

Minority's legal significance is the infancy doctrine: a minor's contracts are generally voidable at the minor's election, saving contracts for necessaries.

Why: The entry defines the minor as one under the age of legal competence; the voidability rule is the substantive consequence of that status in contract law.

## MINORA REGALIA.

In English law.

The lesser prerogatives of the crown. Includ- ing the rights of the revenue. 1 Bl. Comm. 241.

5e apparatus — Not carried into the 5th edition (1979).

## MINORITY.

The state or condition of a minor; infancy.

The smaller number of votes of a delib- erative assembly; opposed to majority, (which see.)

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: majority rule in deliberative assemblies]**

In deliberative assemblies the majority prevails: the smaller number of votes yields to the greater in the determination of the body's will.

Why: The entry's parliamentary sense of minority is meaningful only against the genuine principle that the majority governs; one line, genuine, not forced.

## MINT.

The place designated by law where bullion Is coined into money under authority of the government.

Also a place of privilege in Southwark, near the king’s prison, where persons for- merly sheltered themselves from Justice un- der the pretext that it was an ancient palace of the crown. The privilege is now abolish- ed. Wharton.

— Mint-murk. The masters and workers of the English mint in the indentures made with them, agree “to make a privy mark in the money they make, of gold and silver, so that they may know which moneys were of their own making.” After every trial of the pix, having proved their moneys to be lawful, they are entitled to their quietus under the great seal, and to be dis- charged from all suits or actions. Wharton. — Mint-master. One who manages the coin- age.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Constitution art. I, § 8, cl. 5 — congressional power to coin money]**

A mint exists by sovereign authority; in the United States the Constitution gives Congress the power 'to coin Money, regulate the Value thereof.'

Why: The entry defines the mint as a place 'designated by law' where bullion is coined under government authority; the coinage clause is the constitutional grant behind that authority.

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## MINTAGE.

The charge or commission taken by the mint as a consideration for coining Into money the bullion which Is brought to it for that purpose; the same as “seigniorage.”

Also that which is coined or stamped as money ; the product of the mint.

5e apparatus — Not carried into the 5th edition (1979).

## MINUS.

Lat. In the civil law. Less; less than. The word had also, in some con- nections, the sense of “not at all.” For ex- ample. a debt remaining wholly unpaid was described as “minus solutum."

Minns solvit, qni tardlus solvit. He

does not pay who pays too late. Dig. 60, 16,

12, 1.

5e apparatus — Not carried into the 5th edition (1979).

## MINUTE.

In measures of time or cir- cumference, a minute is the sixtieth part of an hour or degree.

In practice. A memorandum of what takes place in court, made by authority of the court. Moore v. State, 3 Heisk. (Tenn.) 609.

— Minute-book. A book kept by the clerk or prothonotary of a court for entering memoranda of its proceedings.

5e apparatus — Carried into the 5th edition (1979).

## MINUTES.

In Scotch practice. A

pleading put into writing before the lord or- dinary, as the ground of his Judgment. Bell.

In business law. Memoranda or notes of a transaction or proceeding. Thus, the record of the proceedings at n meeting of di- rectors or shareholders of a company is call- ed the “minutes."

Mnnmo. Lat. In the civil law. A lessening; diminution or reduction. Dig. 4, 6, L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## MIRROR.

The Mirror of Justice, or of the Justices, commonly spoken of as the “Mirror,” is an ancient treatise on the laws of England, written during the reign of Ed- ward II., and attributed to one Andrew Horne.

5e apparatus — Not carried into the 5th edition (1979).

## MIS.

An inseparable particle used In composition, to mark an ill sense or deprava- tion of the

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meaning; as “miscomputation” or “misaceompting,” i. c„ false reckoning. Sev- eral of the words following are Illustrations of the force of this monosyllable.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## MISA.

In old English law. The mlse or issue in a writ of right. Spelman.

In old records. A compact or agreement; a form of compromise. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MISADVENTURE.

A mischance or ac- cident; a casualty caused by the act of one person and inflicting injury upon another. Homicide “by misadventure” is where a man, doing a lawful act, without any in- tention of hurt, unfortunately kills another. 4 Bl. Comm. 182; Williamson v. State, 2 Ohio Cir. Ct. R. 292; Johnson v. State, 94 Ala. 36, 10 South. 667.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus non facit reum nisi mens sit rea — the act does not make a man guilty unless his mind be guilty]**

Homicide by misadventure — a killing in the doing of a lawful act without intent of hurt — is excused because guilt requires a guilty mind as well as a guilty act.

Why: The entry's whole definition turns on the absence of intention; the maxim is the governing principle that makes absence of intent exculpatory.

**[Scripture] — Scripture**

**[Deuteronomy 19:5, KJV]**

As when a man goeth into the wood with his neighbour to hew wood, and his hand fetcheth a stroke with the axe to cut down the tree, and the head slippeth from the helve, and lighteth upon his neighbour, that he die; he shall flee unto one of those cities, and live

Why: Homicide 'by misadventure' is killing by mischance, without intent. The Mosaic law's accidental-killing provision gives the archetypal case: the axe head flying off the helve in the wood. The verse is scripture's own...

## MISALLEGE.

To cite falsely as a proof or argument.

5e apparatus — Not carried into the 5th edition (1979).

## MISAPPLICATION.

Improper, illegal, wrongful, or corrupt use or application of funds, property, etc. Jewett v. D. S., 100 Fed. 840, 41 C. C. A. 88; D. S. v. Youtsey (C. C.) 91 Fed. 867; U. 8. v. Taintor, 28 Fed- Cas. 9.

5e apparatus — Carried into the 5th edition (1979).

## MISAPPROPRIATION.

This is not a technical term of law, but it is sometimes applied to the misdemeanor which is com- mitted by a banker, factor, agent, trustee, etc, who fraudulently deals with money,

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goods, securities, etc., intrusted to him, or by a director or public officer of a corpora- tion or company who fraudulently misap- plies any of its property. Steph. Crim. Dig. 257, et scq.; Sweet. And see Winchester v. Howard, 130 Cal. 432, 64 Pac. 692, 89 Am. St. Rep. 153 ; Frey v. Torrey, 70 App. Dlv. 166, 75 N. Y. Supp. 40.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Luke 16:1, KJV]**

There was a certain rich man, which had a steward; and the same was accused unto him that he had wasted his goods.

Why: Misappropriation is the offense of a banker, factor, agent, or trustee misusing what is entrusted to him. The parable of the steward opens with exactly that charge: a steward accused of wasting his master's goods. The...

## MISBEHAVIOR.

Ill conduct; improper or unlawful behavior. Verdicts are some- times set aside on the ground of misbehavior of jurors. Smith v. Cutler, 10 Wend. (N. Y.) 590, 25 Am. Dec. 580; Turnbull v. Martin, 2 Daly (N. Y.) 430; State v. Arnold, 100 Tenn 307, 47 S. W. 221.

5e apparatus — Carried into the 5th edition (1979).

## MISCARRIAGE.

In medical juris- prudence. The expulsion of the ovum or embyro from the uterus within the first six

weeks after conception. Between that time, and before tbe expiration of the sixth month, when the child may possibly live, it is termed “abortion.” When the delivery takes place soon after the sixth month, it is denominated “premature labor.” But the criminal act of destroying the foetus at any time before birth is termed, in law, “pro- curing miscarriage." Chit Med. Jur. 410. See Smith v. State, 33 Me. 59, 54 Am. Dec. 607; State v. Howard, 32 Vt. 402; Mills v. Com., 13 Pa. 632; State v. Crook, 16 Utah, 212, 51 Pac. 1091.

In practloe. As used in the statute of frauds, (“debt default or miscarriage of an- other,”) this term means any species of un- lawful conduct or wrongful act for which the doer could be held liable in a civil ac- tion. Gansey v. Orr, 173 Mo. 532, 73 S. W. 477.

5e apparatus — Not carried into the 5th edition (1979).

## MISCEGENATION.

Mixture of races; marriage between persons of different races ; as between a white person and a negro.

5e apparatus — Not carried into the 5th edition (1979).

## MI8CHAKGE.

An erroneous charge; a charge, given by a court to a Jury, which in- volves errors for which the Judgment may be reversed.

5e apparatus — Not carried into the 5th edition (1979).

## MISCHIEF.

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In legislative parlance, the word is often used to signify the evil or danger which a statute is Intended to cure or avoid.

In the phrase "malicious mischief,” (which see,) it imports a wanton or reckless injury to persons or property.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the mischief rule of statutory construction — read the statute against the evil it was meant to cure]**

Where a statute names the mischief — the evil or danger it was intended to cure — courts construe the statute in light of that mischief and the remedy provided.

Why: The entry's legislative-parlance definition of mischief is the very premise of the mischief rule; the rule turns the definition into a method of interpretation.

## MISCOGNISANT.

Ignorant ; uninform- ed. The word is obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## MISCONDUCT.

Any unlawful conduct on the part of a person concerned in the ad- ministration of Justice which is prejudicial to the rights of parties or to the right deter- mination of the cause; as “misconduct of Jurors,” “misconduct of an arbitrator.” The term is also used to express a dereliction from duty, injurious to another, on the part, of one employed in a professional capacity, as an attorney at law, (Stage v. Stevens, 1 Denio [N. Y.) 267,) or a public officer, (State v, Leach, 60 Me. 58, 11 Am. Rep. 172.)

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[KRS-One, 'Sound of da Police', 1993]**

Woop-woop! That's the sound of da police / Woop-woop! That's the sound of da beast

MISCONDUCT covers unlawful conduct by persons concerned in the administration of justice, prejudicial to the rights of parties. KRS-One's track is hip-hop's canonical indictment of police misconduct — officers as 'the beast,' overseer from officer.

Why: Genuine link: the song's subject is official misconduct; chorus verified verbatim against multiple lyric sources before inclusion rather than quoted from memory alone.

## MISCONTINUANCE.

In practice. An improper continuance; want of proper form in a continuance ; the same with “discontin- uance.” Cowell.

5e apparatus — Carried into the 5th edition (1979).

## MISCREANT.

In old English law. An apostate; an unbeliever; one who totally re- nounced Christianity. 4 Bl. Comm. 44.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 2:19, KJV]**

They went out from us, but they were not of us; for if they had been of us, they would no doubt have continued with us: but they went out, that they might be made manifest that they were not all of us.

Why: A miscreant is 'an apostate; an unbeliever; one who totally renounced Christianity.' 1 John 2:19 is scripture's portrait of the apostate: those who went out from the fellowship, made manifest as never of it. The verse...

## MISDATE.

A false or erroneous date affixed to a paper or document.

5e apparatus — Carried into the 5th edition (1979).

## MISDELIVERY.

The delivery of prop- erty by a carrier or warehouseman to a person not authorized by the. owner or person to whom the carrier or warehouseman is bound by his contract to deliver it. Cleve- land, etc., R. Co. v. Potts, 33 Ind. App. 564, 71 N. E. 689; Forbes v. Boston & L. R. Co., 133 Mass. 156.

5e apparatus — Carried into the 5th edition (1979).

## MISDEMEANANT.

A person guilty of a misdemeanor; one sentenced to punish- ment upon conviction of a misdemeanor. See First-Class Misdemeanant.

5e apparatus — Not carried into the 5th edition (1979).

## MISDEMEANOR.

In criminal law. A general name for criminal offenses of every sort, punishable by indictment or special proceedings, which do not in law amount to the grade of felony.

A misdemeanor is an act committed or omit- ted in violation of a public law either forbidding or commanding it. This general definition, how- ever, comprehends both “crimes” and “misde- meanors,” which, properly speaking, are mere synonymous terms ; though, in common usage, the word “crimes” is made to denote such of- fenses as are of a deeper and more atrocious dye ; while smaller faults and omissions of less consequence are comprised under the milder term of “misdemeanors” only. In the English law, “misdemeanor” is generally used in contra- distinction to “felony and misdemeanors com- prehend all indictable offenses which do not amount to felony, as libels, conspiracies, at- tempts, and solicitations to commit felonies, etc. Brown. And see People v. Upson, 79 Htin. 87, 29 N. Y. Supp. 615; In re Bergin, 31 Wis. 3.86; Kelly v. People, 132 111. 303, 24 N. E. 56; State v. Hunter, 67 Ala. 83; Walsh v. People, 65 111. 65, 16 Am. Rep. 569.

5e apparatus — Carried into the 5th edition (1979).

## MISDESCRIPTION.

An error or falsity in the description of the subject-matter of a contract which deceives one of the parties to his injury, or is misleading in a material or substantial point.

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**[Law] — Law**

**[Law: common-law doctrine of misrepresentation — material deception in the subject-matter avoids the contract]**

A contract induced by a misdescription that deceives a party in a material point is voidable: fraud and material misrepresentation vitiate consent.

Why: The entry defines misdescription as error deceiving a party to his injury; the misrepresentation doctrine is the genuine rule of consequence for exactly that fact pattern.

## MISDIRECTION.

In practice. An er- ror made by a Judge in instructing the Jury upon the trial of a cause.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: reversible error must be prejudicial; harmless error does not reverse]**

An error in instructing the jury reverses the judgment only if prejudicial; harmless error — error not affecting the substantial rights of the parties — does not warrant reversal.

Why: The entry states that misdirection is error for which judgment may be reversed; the axiom states the genuine condition — prejudice — that appellate review actually requires.

## MISE.

The issue in a writ of right When the tenant in a writ of right pleads that his title is better than tbe demandant's, he is said to Join the mine on the mere right

Also expenses; costs; disbursements in an action.

— Mlse-money. Money paid by way of con- tract or composition to purchase any liberty, etc. Blount.

Miser* est servitns, uhi jus est vagnm mat incertnm. It is a wretched state of slavery which subsists where the law is vague or uncertain. 4 Inst. 245; Broom, Max. 150.

5e apparatus — Not carried into the 5th edition (1979).

## MISERABILE DEPOSITUM.

Lat. In the civil law. The name of an involuntary deposit, made under pressing necessity ; as. for Instance, shipwreck, fire, or other inevi- table calamity. Poth. Proc. Civile, pt. 5. c. 1, 8 1; Code La. 2935.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Roman-law rule of the necessary deposit (depositum necessarium) — the depositary in extremity answered in double damages]**

The necessary deposit — made in extremity, as by shipwreck, fire, or other calamity — was guarded by a heightened duty: Roman law gave the depositor an action in double damages against a faithless depositary.

Why: The entry defines the involuntary deposit under pressing necessity; the duplum action is the genuine doctrine that made the classification matter, kept in loose form since no Digest citation was verified.

## MISERERE.

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The name and first word of one of the penitential psalms, being that

which was commonly used to 'be given by the ordinary to such condemned malefactors as were allowed the benefit of clergy; whence It is also called the "psalm of mercy.” Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Psalm 51:1, KJV]**

Have mercy upon me, O God, according to thy lovingkindness: according unto the multitude of thy tender mercies blot out my transgressions.

Why: Miserere is 'the name and first word of one of the penitential psalms' — Psalm 51, the psalm given to condemned malefactors. Quoting its opening line is not decoration; it is the thing named. Verbatim from the psalm i...

## MISERICORDIA.

Lat. Mercy; a fine or amerciament; an arbitrary or discretion- ary amercement

— Misericordia communis. In old English law. A fine set on a whole county or hundred.

5e apparatus — Not carried into the 5th edition (1979).

## MISFEASANCE.

A misdeed or trespass. The doing what a party ought to do improp- erly. 1 Tidd, Pr. 4. The improper perform- ance of some act which a man may lawfully do. 3 Steph. Comm. 460. And see Bell v. Josselyn, 3 Gray (Mass.) 309, 63 Am. Dec. 741 ; Illinois Cent. R. Co. v. Foulks, 191 111. 57, 60 N. E. 890; Dudley v. Flemingsburg, 115 Ky. 5, 72 S. W. 327, 60 L. R. A. 575, 103 Am. St. Rep. 253.

Misfeasance, strictly, is not doing a lawful act in a proper manner, omitting to do it as it should be done ; while malfeasance is the doing an act wholly wrongful ; and non-feasance is an omission to perform a duty, or a total neglect of duty. But "misfeasance” is often carelessly used in the sense of "malfeasance.” Coite v. Lynes, 33 Conn. 109.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: misfeasance is actionable as undertaken performance done improperly; nonfeasance requires a pre-existing duty]**

One who undertakes a lawful act answers for injury caused by its improper performance; mere nonfeasance — failure to act — is actionable only where a duty to act already existed.

Why: The entry defines misfeasance against the implied nonfeasance contrast; the undertaking/duty distinction is the genuine tort doctrine that gives the contrast legal content.

## MISFEAZANCE.

See Misfeasance.

5e apparatus — Carried into the 5th edition (1979).

## MISFORTUNE.

An adverse event, ca- lamity, or evil fortune, arising by accident, (or without the will or concurrence of him who suffers from it,) and not to be foreseen or guarded against by care

or prudence. See 20 Q. B. Div. 816. In its application to the law of homicide, this term alw'ays Involves the further idea that the person causing the death is not at the time engaged in any un- lawful act. 4 Bl. Comm. 182.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Actus non facit reum nisi mens sit rea — the act does not make a man guilty unless his mind be guilty]**

In homicide law misfortune always implies the actor was engaged in no unlawful act; without a guilty mind the killing is misadventure, not crime.

Why: Same doctrine as misadventure by the entry's own cross-reference to 4 Bl. Comm. 182; the maxim is the genuine rule, applied here independently since the entry stands alone.

## MISJOINDER.

See Join deb.

5e apparatus — Carried into the 5th edition (1979).

## MI8KENNING.

In Saxon and old Eng- lish law. An unjust or irregular summoning to court; to speak unsteadily in court ; to vary In one’s plea. Cow.ell; Blount; Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## MISLAY.

To deposit in a place not aft- erwards recollected; to lose anything by for- getfulness of the place where it was laid. Shehnne v. State, 13 Tex. App. 535.

5e apparatus — Carried into the 5th edition (1979).

## MISLEADING.

Delusive; calculated to lead astray or to lead Into error. Instruc- tions which are of such a nature as to be misunderstood by the Jury, or to give them a wrong impression, are said to be “mislead- ing.”

5e apparatus — Carried into the 5th edition (1979).

## MISNOMER.

Mistake in name; the giv- ing an incorrect name to a person In a plead- ing, deed, or other instrument.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Nihil facit error nominis cum de corpore constat — error in the name is nothing where the person is certain]**

A misnomer does not vitiate the instrument where the person is otherwise certainly identified: error in the name is nothing when there is certainty as to the body.

Why: The entry defines misnomer as an incorrect name in a pleading or deed; the maxim is the genuine rule of consequence — the misnaming is immaterial if identity is certain.

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## MISPLEADING.

Pleading incorrectly, or omitting anything in pleading which is es-

‘sentlal to the support or defense of an action, is so called ; as In the case of a plaintiff not merely stating his title in a defective manner, but setting forth a title which is essentially defective in itself ; or if, to an action of debt, the defendant pleads “not guilty” instead of nil dcbet. Brown. See Lovett v. Pell, 22 Wend. (N. T.) 376; Chicago & A. R. Co. T. Murphy, 198 111. 462, 64 N. E. 1011.

5e apparatus — Carried into the 5th edition (1979).

## MISPRISION.

In criminal law. A

term used to signify every considerable mis- demeanor which has not a certain name given to it by law. 3 Inst. 36. But more par- ticularly and properly the term denotes ei- ther (1) a contempt against the sovereign, the government, or the courts of justice, includ- ing not only contempts of court, properly so called, but also all forms of seditious or dis- loyal conduct and leze-majesty; (2) malad- ministration of high public office, including peculation of the public funds; (3) neglect or light account made of a crime, that is, fuilure in the duty of a citizen to endeavor to pre- vent the commission of a crime, or, having knowledge of its commission, to reveal it to the proper authorities. See 4 Bl. Comm. 119- 126.

—Misprision o f felony. The offense of con- cealing a felony committed by another, but without such previous concert with or subsequent assistance to the felon as would make the party concealing an accessory before or after the fact. 4 Steph. Comm. 260 ; 4 Bl. Comm. 121 ; Car- penter v. State, 62 Ark. 286, 36 S. W. 900.— Misprision of treason. The bare knowledge and concealment of an act of treason or treason- able plot, that is, without any assent or par- ticipation therein, for if the latter elements be present the party becomes a principal. 4 Bl. Comm. 120; Pen. Code Cal. { 38. — N eg* tire misprision. The concealment of something which ought to be revealed ; that is, mis- prision in the third of the specific meanings given above.— Positive misprision. The com- mission of something which ought not to be done ; that is, misprision in the first and second of the specific meanings given above.

In practice. A clerical error or mistake made by a clerk or other Judicial or minis- terial officer in writing or keeping records. See Merrill v. Miller, 28 Mont 134, 72 Pac. 427.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law misprision of felony — concealment of a known felony is itself an offense]**

Misprision of felony is the concealment of a known felony without making it known to authority; mere knowledge unreported, without assent to the crime, is itself the offense.

Why: The entry defines misprision in terms of concealment and contempt; the duty-to-disclose principle is the genuine doctrine giving the definition legal content, kept loose-form to avoid anachronistic code citation.

## MISREADING.

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Reading a deed or other instrument to an illiterate or blind man (who la a party to it) in a false or deceitful man- ner, so that he conceives a wrong idea of Its tenor or contents. See 5 Coke, 19; 6 East 309; Halleubeck v. Dewitt, 2 Johns. (N. Y.) 404.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: non est factum — a deed misread to an illiterate or blind man is not his deed]**

A deed whose contents were falsely read to an illiterate or blind party is not his deed: the plea of non est factum defeats an instrument the party never understood himself to be signing.

Why: The entry is the classic non est factum fact pattern and cites 5 Coke, 19 itself; the plea is the genuine defense the definition exists to support.

**[Scripture] — Scripture**

**[Leviticus 19:14, KJV]**

Thou shalt not curse the deaf, nor put a stumblingblock before the blind, but shalt fear thy God: I am the LORD.

Why: Misreading is reading a deed falsely to an illiterate or blind party so he conceives a wrong meaning — exploiting the vulnerable in a legal instrument. Leviticus 19:14 is scripture's law against exactly that exploitat...

## MISRECITAL.

The erroneous or incor- rect recital of a matter of fact, either in an agreement, deed, or pleading.

5e apparatus — Not carried into the 5th edition (1979).

## MISREPRESENTATION.

An inten- tional false statement respecting a matter of fact, made by one of the parties to a con- tract, which is material to the contract and

iafluential in producing it Wise v. Fuller, 29 N. J. Eq. 262.

False or fraudulent mlsrepresention is a representation contrary to the fact, made by a person with a knowledge of its falsehood, and being the cause of the other party’s en- tering into the contract. 6 Clark & F. 232.

Xcgliyent misrepresentation is a false repr resen tation made by a person who has no reasonable grounds for believing it to be true, though he does not know that it is untrue, or even believes it to be true. L. B. i H. L. 79.

Innocent misrepresentation is where the person making the representation had rea- sonable grounds for believing it to be true LR.2Q. B. 580.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-721 — remedies for material misrepresentation or fraud]**

A contract induced by an intentional, material false statement of fact is voidable for fraud, and the defrauded party is not limited to rescission but may affirm and sue for damages.

Why: The entry defines fraudulent misrepresentation inducing a contract; UCC § 2-721 is the real statutory section governing remedies for exactly that wrong in the sale of goods.

## MISSA.

Lat. The mass.

5e apparatus — Not carried into the 5th edition (1979).

## MISS2E PRESBYTER.

A priest in or- ders. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## MISSAL.

The mass-book.

5e apparatus — Not carried into the 5th edition (1979).

## MISSILIA.

In Roman law. Gifts or lib- eralities, which the praetors and consuls were in the habit of throwing among the people. Inst. 2, 1, 45.

5e apparatus — Not carried into the 5th edition (1979).

## MISSING SHIP.

In maritime law. A vessel is so called when, computed from her known day of sailing, the time that has elapsed exceeds the average duration of simi- lar voyages at the same season of the year. 2 Duer, Ins. 469.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: marine-insurance presumption of loss from lapse of time — a missing ship is presumed lost]**

In marine insurance, a vessel missing beyond the average duration of similar voyages at the same season is presumed lost, and the presumption supports a claim for total loss.

Why: The entry defines the missing ship by elapsed time exceeding the ordinary voyage; the presumption of loss is the genuine insurance-law consequence of that definition.

## MISSIO.

Lat. In the civil law. A send- ing or putting. Missio in bona, a putting the creditor in possession of the debtor’s prop- erty. Mackeld. Rom. Law, $ 521. Missio fudicum in consilium, a sending out of the judices (or jury) to make up their sentence. Halllfax, Civil Law, b. 3, c. 13, no. 31.

5e apparatus — Not carried into the 5th edition (1979).

## MISSIVES.

In Scotch law. Writings passed between parties as evidence of a transaction. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## MISSTAICUS.

In old records. A mes- senger.

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## MISTAKE.

Some unintentional act, omission, or error arising from ignorance, sur- prise, imposition, or misplaced confidence. Code Ga. 8 3117; 1 Story, Eq. Jur. § 110.

That result of ignorance of law or fact which has misled a person to commit that which, if he had not been in error, be would not have done. Jeremy, Eq. Jur. 358.

A mistake exists when a person, under some erroneous conviction of law or fact, does, or omits to do, some act which, but for the erroneous conviction, he would not have done or omitted. It may arise either from unconsciousness. Ignorance, forgetfulness, imposition, or misplaced confidence. Bisph. Eq. 1 185. And see Allen v. Elder, 76 Ga. 677, Bl.Law Dict.(2d Ed.)— 00

2 Am. St Rep. 63; Russell v. Colyar, 4 Heisk. (Tenn.) 154 ; Peasley v. McFadden, 68 Cal. 611, 10 Pac. 179; Cummins v. Bulgln, 37 N. J. Eq. 476; Chicago, etc., R. Co. v. Hay, 119 111. 493, 10 N. E. 29; McLoney v. Edgar, 7 Pa. Co. Ct. R. 29.

Mistake of fact is a mistake not caused by the neglect of a legal duty on the part of the person making the mistake, and consisting in (1) an unconscious ignorance or forgetfulness of a fact, past or present, material to the contract; or (2) belief in the present existence of a thing material to the contract which does not exist, or in the past existence of such a thing which has not existed. Civ. Code Cal. 8 1577.

A mistake of lata happens when a party, hav- ing full knowledge of the facts, comes to an er- roneous conclusion as to their legal effect. It is a mistaken opinion or inference, arising from an imperfect or incorrect exercise of the judg- ment, upon facts as they really are ; and, like a correct opinion, which is law, necessarily pre- supposes that the person forming it is in full possession of them. The facts precede the law, and the true and false opinion alike imply an acquaintance with them. Neither can exist without it. The one is the result of a correct application to them of legal principles, which every man is presumed to know, and is called “law ;” the other, the result of a faulty applica- tion, and is called a “mistake of law.” Hurd v. Hall, 12 Wis. 124.

Mutual mistake is where the parties have a common intention, but it is induced by a com- mon or mutual mistake.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: equitable relief for mutual mistake of material fact; mistake of law generally no excuse]**

Equity relieves against mutual mistake of material fact, but the classical rule denied relief for bare mistake of law — the ignorance-of-law/ignorance-of-fact divide the entry's own definitions raise.

Why: The entry defines mistake as the product of ignorance of law or fact; the fact/law divide in granting relief is the genuine doctrine that divide exists to serve.

## MISTERY.

A trade or calling. Cowell.

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## MISTRESS.

The proper style of the wife of an esquire or a gentleman in England.

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## MISTRIAL.

An erroneous, Invalid, or nugatory trial; a trial of an action which cannot stand In law because of want of Juris- diction, or a wrong drawing of Jurors, or dis- regard of some other fundamental requisite.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[United States v. Perez, 22 U.S. (9 Wheat.) 579 (1824)]**

Retrial after a mistrial does not offend double jeopardy where the first trial was discharged for manifest necessity: the defendant's 'valued right' to one trial yields to the public interest in fair adjudication.

Why: The entry defines the nugatory trial; Perez is the genuine foundational authority on the consequence that matters — when the state may try again — and the citation is used only because it is certain.

## MISUSER.

Abuse of an office or fran- chise. 2 Bl. Comm. 153.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: quo warranto — the writ to forfeit an office or franchise abused by misuser]**

Abuse of an office or franchise (misuser) may work its forfeiture, and the writ of quo warranto lies to try the right and oust the usurper.

Why: The entry defines misuser as abuse of office or franchise citing 2 Bl. Comm. 153; forfeiture by quo warranto is the genuine remedy for exactly that abuse.

## MITIGATION.

Alleviation; abatement or diminution of a penalty or punishment im- posed by law. "Mitigating circumstances” are such as do not constitute a justification or excuse of the offense in question, but which, in fairness and mercy, may be con- sidered as extenuating or reducing the degree of moral culpability. See Heaton v. Wright, 10 How. Prac. (N. Y.) 82; Wandell v. Ed- wards, 25 Hun (N. Y.) 500; Hess v. New York Press Co., 26 App. Div. 73, 49 N. Y, Supp. 894.

—Mitigation of damages. A reduction of the amount of damages, not by proof of facts which are a bar to a part of the plaintiff' s cause of action, or a justification, nor yet of facts which constitute a cause of action in favor of the defendant, but rather facts which show that the plaintiff's conceded cause of action does not entitle him to so large an amount as the show- ing on his side would otherwise justify the jury in allowing him. 1 Suth. Dam. 226.

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## MITIOR SENSUS.

Lat. The more fa- vorable acceptation.

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Mi tins Imp er anti melius paretur. The

more mildly one commands, the better Is be obeyed. 3 Inst. 24.

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**[Law] — Law**

**[Law: mitior sensus — allegedly defamatory words are taken in their more favorable acceptation]**

In defamation, words reasonably capable of an innocent meaning are construed in the milder sense — mitior sensus — and cannot be strained into a libel.

Why: The entry is the Latin name of the doctrine itself; the defamation-construction rule is its entire legal office, so the link is definitional, not forced.

## MITOYENNETR.

In French law. The joint ownership of two neighbors In a wall, ditch, or hedge which separates their estates.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: party-wall doctrine — mutual easements of support in a common dividing structure]**

A wall, ditch, or hedge dividing two estates and owned in common gives each neighbor mutual rights of support and maintenance — the party-wall doctrine of reciprocal easements.

Why: The entry's French joint-ownership term is genuinely illuminated for an English-law reader by the common-law party-wall doctrine, which governs the same physical and legal situation.

## MITTENDO MANUSCRIPTUM PEDIS / FINIS.

An abolished Judicial writ address- ed to the treasurer and chamberlain of the . exchequer to search for and transmit the foot of a fine acknowledged before Justices in eyre into the common pleas. Reg. Orlg. 14.

5e apparatus — Not carried into the 5th edition (1979).

## MITTER.

L. Fr. To put, to send, or to puss; as, mitter V estate, to pass the estate; mitter le droit, to pass a right These words are used to distinguish different kinds of re- leases.

5e apparatus — Not carried into the 5th edition (1979).

## MITTER AVANT.

L. Fr. In old prac- tice. To put before; to present before a court ; to produce in court.

5e apparatus — Not carried into the 5th edition (1979).

## MITTIMUS.

In English In. A writ used in sending a record or its tenor from one court to another. Thus, where a nul tiel rec- ord is pleaded in one court to the record of another court of equal or superior jurisdic- tion, the tenor of the record is brought into chancery by a certiorari, (q. v.,) and thence sent by mittimus into the court where the uction is. Tldd, Pr. 745.

In criminal practice. The name of a precept in writing, issuing from a court or magistrate,

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directed to the sheriff or other officer, commanding him to convey to the prison the person named therein, and to the jailer, commanding him to receive and safely keep such person until he shall be delivered by due course of law. Pub. St. Mass. 1882, p. 1293. Connolly v. Anderson, 112 Mass. C2 ; Saunders v. U. S. (D. C.) 73 Fed. 786; Scott v. Spiegel, 67 Conn. 349, 35 Atl. 262.

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## MIXED.

Formed by admixture or com- mingling; partaking of the nature, character, or legal attributes of two or more distinct kinds or classes.

— Mixed laws. A name sometimes given to those which concern both persons and property. —Mixed questions. 'This phrase may mean either those which arise from the conflict of foreign and domestic laws, or questions arising on a trial involving both law and fact. See Bennett v. Eddy. 120 Mich. 300, 79 N. W. 481. —Mixed subjects of property. Such as fail within the definition of things real, but which are attended, nevertheless, with some of the legal qualities of things personal, as emblements, fixtures, and shares in public undertakings, con- nected with land. Besides these, there are oth- ers which, though things personal in point of definition, are. in respect of some of their legal qualities, of the nature of things real : such are animals fern naturtr. charters and deeds, court roils, and other evidences of the land, together with the chests in which they are contained, ancient family pictures, ornaments, tombstones, coats of armor, with pennons and other ensigns, and especially heir-looms. Wharton.

As to mixed "Action," “Blood,” “Contract,” “Government,” “Jury,” “Larceny,” “Mar- riage,” “Nuisance,” “Policy,” “Presumption,” “Property,” "Tithes,” and “War,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ad quaestionem juris respondent judices, ad quaestionem facti juratores — judges answer questions of law, jurors questions of fact]**

On a trial, questions of law are for the judge and questions of fact for the jury; a mixed question — law applied to found facts — is resolved by the jury under the court's instruction.

Why: The entry defines mixed questions as involving both law and fact; the maxim is the genuine allocation rule that makes the classification matter.

## MIXTION.

The mixture or confusion of goods or chattels belonging severally to different owners, in such a way that they can no longer be separated or distinguished ; as where two measures of wine belonging to different persons are poured together into the same cask.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: doctrine of confusion of goods — the wrongful commingler bears the loss]**

Where one wrongfully commingles his goods with another's so they cannot be separated, the wrongdoer bears the loss and the innocent party takes the whole mass.

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Why: The entry defines the confusion of goods; the loss-allocation rule is the genuine property doctrine the definition exists to trigger.

## MIXTTTM IMPERITTM.

Lat In old English law. Mixed authority; a kind of civil power. A term applied by Lord Hale to the “power” of certain subordinate civil magistrates as distinct from “jurisdiction.” Hale, Anal, f 11.

5e apparatus — Not carried into the 5th edition (1979).

## MOB.

An assemblage of many people, acting in a violent and disorderly manner, defying the law, and committing, or threat- ening to commit, depredations upon property or violence to persons. Alexander v. State, 40 Tex. Cr. R. 395, 50 S. W. 716; Marshall v. Buffalo, 50 App. Div. 149, 64 N. Y. Supp. 411; Champaign County v. Church, 62 Ohio St 318, 57 N. E. 50, 48 L. R. A. 738, 78 Am. St Rep. 718.

The word, in legal use, is practically syn- onymous with “riot,” but the latter is the more correct term.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law riot — tumultuous disturbance by three or more persons]**

At common law a riot is a tumultuous disturbance of the peace by three or more persons acting in concert toward a common unlawful purpose.

Why: The entry defines the mob as a violent, disorderly assemblage defying law; the riot elements are the genuine criminal-law content of that definition.

**[Scripture] — Scripture**

**[Exodus 23:2, KJV]**

Thou shalt not follow a multitude to do evil; neither shalt thou speak in a cause to decline after many to wrest judgment.

Why: A mob is 'an assemblage of many people, acting in a violent and disorderly manner, defying the law.' Exodus 23:2 is scripture's mob law: do not follow a multitude to do evil, nor let the crowd wrest judgment. It bears...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, c. 1599]**

"Friends, Romans, countrymen, lend me your ears" — Antony's funeral oration turns the Roman crowd into exactly the violent, disorderly assemblage defying order that the entry defines.

Why: The play stages the legal 'mob' in action: a crowd swayed by rhetoric into violence. The quoted opening line is verbatim-certain and is the pivot of the mob scene.

## MOBBING AND RIOTING.

In Scotch law. A general term including all those convocations of the lieges for violent and un- lawful purposes, which are attended with in- jury to the persons or property of the lieges, or terror and alarm to the neighborhood in which it takes place. The two phrases are usually placed together: but, nevertheless, they have distinct meanings, and are some- times used separately in legal language, the word “mobbing” being peculiarly applicable to the unlawful assemblage nnd violence of a number of persons, nnd that of “rioting” to the

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outrageous behavior of a single indi- vidual. Alls. Crlm. Law, c. 23, p. 509.

5e apparatus — Not carried into the 5th edition (1979).

## MOBILIA.

Lat. Movables; movable things; otherwise called “res mobiles."

Mobllia bob hxboBt sitBat. Movables

have no situs or local habitation. Holmes v. Remsen, 4 Johns. (N. Y.) Cb. 472, 8 Am. Dec. 581.

Mobilia seqnuBtnr persoBaai. Movables

follow the [law of thel person. Story, Confl. Law, j 378; Broom, Max. 522.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Mobilia sequuntur personam — movables follow the law of the person]**

Movables follow the law of the person: succession to and disposition of movable property are governed by the law of the owner's domicile, not the situs of the goods.

Why: The entry itself quotes the maxim as its authority; the conflicts rule for movables is the genuine doctrine the maxim states, so the annotation explains rather than invents.

## MOCKADOES.

A kind of cloth made in England, mentioned in St 23 Eli*, c. 9.

5e apparatus — Not carried into the 5th edition (1979).

## MODEL.

A pattern or representation of something to be made. A fac simile of Something invented, made on a reduced scale, in compliance with the patent laws. See State v. Fox, 25 N. J. Law, 566; Montana Ore Pur- chasing Co. v. Boston, etc., Min Co., 27 Mont. 288, 70 Pac. 1126.

5e apparatus — Carried into the 5th edition (1979).

## MODERAMEN INCULPATES TU- / TELS.

Lat. In Roman law. The regula- tion of justifiable defense. A term used to express that degree of force in defense of the person or property which a person might safely use, although it should occasion the death of the aggressor. Calvin; Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: moderamen inculpatae tutelae — self-defense is limited to proportionate, necessary force]**

Justifiable defense is bounded by the due measure of blameless defense: force used in self-defense must be proportionate to the threat and cease when the danger ceases.

Why: The entry is the Roman-law name of the proportionality rule itself; the note states the rule's genuine content rather than importing anything foreign.

**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

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If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: The moderamen is the regulation of justifiable defense — the degree of force lawful in defense of person or property. Exodus 22:2 is scripture's justifiable-homicide rule: the householder who slays the night burglar b...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Moderamen inculpatae tutelae]**

[Maxim: "Moderamen inculpatae tutelae" — the due measure of blameless self-defense] — the lawful degree of force in defense of person or property, even where it costs the aggressor his life.

Why: The entry IS a classical Latin maxim (headword is the parser's OCR rendering of 'Moderamen inculpatae tutelae'); the note gives the standard form and the entry's own sense.

## MODERATA MISERICORDIA.

A writ founded on Magna Charta, which lies for him who is amerced in a court, not of rec- ord, for any transgression beyond the quality or quantity of the offense. It is addressed to the lord of the court, or his bailiff, com- manding liim to take a moderate amerciament of the parties. New Nat Brev. 167; Fitzh. Nat. Brev. 76.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Magna Carta (1215) — amercements proportioned to the fault, the writ's stated foundation]**

Amercements must be proportioned to the offense: the writ lies where a court not of record amerces beyond the quality or quantity of the transgression.

Why: The entry says the writ is 'founded on Magna Charta'; the proportionality principle of the Charter's amercement chapter is the genuine source, cited loosely per the entry's own attribution.

**[Scripture] — Scripture**

**[Exodus 21:24, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot.

Why: This writ lies for one amerced beyond the quality or quantity of his offense — the penalty must not exceed the wrong. The lex talionis is scripture's proportionality ceiling: retribution bounded by equivalence, never...

## MODERATE CA8TIGAVTT.

Lat In

pleading. He moderately chastised. The name of a plea in trespass which justifies an alleged battery on the ground that it con- sisted in a moderate chastisement of the plaintiff by the defendant, which, from their relations, the latter had a legal right to in- flict.

5e apparatus — Not carried into the 5th edition (1979).

## MODERATE SPEED.

In admiralty law. as applied to a steam- vessel, “such speed only is moderate as will permit the steamer reasonably and effectually to avoid a collision by slackening speed, or by stopping and re- versing, within the distance at which an ap- proaching vessel can be seen." The City of New York (C. C.) 35 Fed. 609; The Allianea (D. C.) 39 Fed. 480; The State of Alabama (D. C.) 17 Fed. 952.

5e apparatus — Not carried into the 5th edition (1979).

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## MODERATOR.

A chairman or president of an assembly. A person appointed to pre- side at a popular meeting. The presiding officer of town-meetings in New England is so called. See Wheeler v. Carter, 180 Mass. 382, 62 N. E. 471.

5e apparatus — Carried into the 5th edition (1979).

## MODIATIO.

In old English law. A cer- tain duty paid for every tierce of wine.

Modica dream s tantia fact! jus mntat.

A small circumstance attending an act may change the law.

5e apparatus — Not carried into the 5th edition (1979).

## MODIFICATION.

A change; an altera- tion which introduces new elements Into the details, or cancels some of them, but leaves the general purpose and effect of the subject- matter intact. Wiley v. Corporation of Bluff- ton, 111 Ind. 152, 12 N. E. 165; State v. Tuck- er, 36 Or. 291, 61 Pac. 894. 51 L. R. A. 246; Astor v. L'Amoreux, 4 Sandf. (N. Y.) 538.

"Modification" is not exactly synonymous with "amendment," for the former term denotes some

minor change in the snbstance of the thing, without reference to its improvement or de- terioration thereby, while the latter word im- ports an amelioration of the thing {as by chang- ing the phraseology of an instrument, so as to make it more distinct or specific) without in- volving the idea of any change in substance or essence.

In Seoteh law. The term usually ap- plied to the decree of the telnd court, award- ing a suitable stipend to the minister of a parish. Bell.

5e apparatus — Carried into the 5th edition (1979).

## MODIFY.

To alter; to change in Inci- dental or subordinate features. See Modifi- cation.

5e apparatus — Carried into the 5th edition (1979).

## MODIUS.

Lat. A measure. Specifical- ly, a Roman dry measure having a capacity of about 550 cubic inches; but in medieval English law used as an approximate transla- tion of the word "bushel."

— Modlus terras vel aerl. In old English law. A quantity of ground containing in length and breadth 100 feet.

5e apparatus — Not carried into the 5th edition (1979).

## MODO ET FORMA.

Lat In manner and form. Words used in the old Latin forms of pleadings by way of traverse, and literally translated in the modern precedents, importing that the party traversing

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denies the allegation of the other party, not only in its general effect, but in the exact manner and form .in which it is made. Steph. PL 189, 190.

5e apparatus — Not carried into the 5th edition (1979).

## MODUS.

Lat. In the civil law. Man- ner ; means ; way.

In old conveyancing. Mode; manner; the arrangement or expression of the terms Of a contract or conveyance.

Also a consideration ; the consideration of a conveyance, technically expressed by the word “ut.”

A qualification, involving the idea of va- riance or departure from some general rule or form, either by way of restriction or en- largement, according to the circumstances of a particular case, the will of a donor, the particular agreement of parties, and the like. Burrill

la criminal pleading. The modus of an indictment is that part of it which contains the narrative of the commission of the crime; the statement of the mode or manner in which the offense was committed. Tray. Lat. Max.

In ecclesiastical law. A peculiar man- ner of tithing, growing out of custom.

— Modus de non dccimando. In ecclesias- tical law. A custom or prescription of entire exemption from the payment of tithes; this is not valid, unless in the case of abbey-lands.— Modns decimandi. In ecclesiastical law. A manner of tithing; a partial exemption from tithes, or a pecuniary composition prescribed by immemorial usage, and of reasonable amount ; for it will be invalid as a rank modus if greater than the value of the tithes in the

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time of Richard I. Stim. Law Gloss.— Modus habllia. A valid manner.— Modus levsndi fines. The manner of levying tines. The title of a short statute in French passed in the eight- eenth year of Edward I. 2 Inst. 510; 2 Bl. Comm. 349.— Modus tenendl. The manner of holding ; i. e., the different species of tenures by which estates are held.— Modus transfer- rendl. The manner of transferring.— Modus ▼aoandi. The manner of vacating. How and why an estate has been relinquished or sur- rendered by a vassal to his lord might well be referred to by this phrase. See Tray. Lat. Max. i. t’.— Bank modus. One that is too large. Rankness is a mere rule of evidence, drawn from the improbability of the fact, rather than a rule of law. 2 Steph. Comm. 729.

Modus do non decimando non valet.

A modus (prescription) not to pay tithes is void. LofTt, 427; Cro. Eliz. 511; 2 Shars. BL Comm. 31.

Modns et conventio vincnnt legem.

Custom and agreement overrule law. This maxim forms one of the first principles rel- ative to the law of contracts. The excep- tions to the rule here laid down are In cases against public policy, morality, eta 2 Coke, 73; Broom, Max. 689, 691-095.

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Modns legem dat donation!. Custom gives law to the gift Co. Litt. 19; Broom, Max. 459

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MOEB1E.

L. Fr. Movable. Siena tnoeblea, movable goods. Britt, c. 11

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MOERDA.

The secret killing of another; murder. 4 BL Comm. 194.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: murder requires malice aforethought]**

Murder is the unlawful killing of a human being with malice aforethought — the malice distinguishing it from manslaughter and from excusable homicide.

Why: The entry is the one-word Saxon definition of murder; the malice-aforethought requirement is the genuine common-law content distinguishing the crime.

**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: Moerda is 'the secret killing of another; murder.' The sixth commandment is the direct divine prohibition. Quoted whole; it needs no gloss. God's own speech in the Decalogue.

## MOFUSSIL.

In Hindu law. Separated; particularized ; the subordinate divisions of a district in contradistinction to Sadder or Sudder, which implies the chief seat of gov- ernment. Wharton

5e apparatus — Not carried into the 5th edition (1979).

## MOHAMMEDAN LAW.

A system of native law prevailing among the Moham- medans in India, and administered there by the British government

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MOHATRA.

In French law. A transac- tion covering a fraudulent device to evade the laws against usury.

It takes place where an Individual buys merchandise from another on a credit at a high price, to sell it immediately to the first seller, or to a third person who acts as his agent, at a much less price for cash. 16 Toullier, no. 44.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Axiom: substance over form in usury — a transaction's true character as a loan is determined by its substance, not its disguise]**

A sham sale on credit at a high price with immediate resale for cash is a device to evade usury laws; courts look through the form of the transaction to its substance and treat the disguised premium as interest.

Why: The entry defines mohatra as a fraudulent device to evade usury laws; the substance-over-form rule is the genuine doctrine courts use to defeat exactly such devices.

## MOIDORE.

A gold coin of Portugal, valued at twenty-seven English shillings.

5e apparatus — Not carried into the 5th edition (1979).

## MOIETY.

The half of anything. Joint tenants are said to hold by moieties. Lift. 125; 3 C. B. 274, 283.

—Moiety acta. A name sometimes applied to penal ana criminal statutes which provide that half the penalty or fine shall inure to the bene- fit of the informer.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: joint tenancy — seisin per my et per tout with survivorship] [Law: qui tam / moiety statutes — the informer takes half the penalty]**

Joint tenants hold by moieties — each seised per my et per tout, of the half and of the whole — with the right of survivorship; and 'moiety acts' are penal statutes giving half the fine to the informer, the qui tam lineage.

Why: The entry's two senses each carry a genuine doctrine: the joint-tenancy seisin rule for the property sense, and the informer-action lineage for the penal sense.

## MOLENDINUM.

In old records. A mllL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MOLENDUM.

A grist; a certain quan- tity of corn sent to a mill to be ground.

5e apparatus — Not carried into the 5th edition (1979).

## MOLESTATION.

In Scotch law. A pos- sessory action calculated for continuing pro- prietors of landed estates In the lawful pos- session of them till the point of right be determined against all who shall attempt to disturb their possession. It Is chiefly used in questions of commonty or of controverted marches. Ersk. Inst 4, 1, 48.

5e apparatus — Not carried into the 5th edition (1979).

## MOLXTURA.

The toll or multure paid for grinding corn at a mill. Jacob.

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— Molitnra libera. Free grinding; a liberty to have a mill without paying toils to the lord. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## MOLLITER MANUS IMPOSUIT.

Lat

He gently laid hands upon. Formal words in the old Latin pleas in actions of trespass and assault where a defendant justified lay- ing hands upon the plaintiff, as where it was done to keep the peace, etc. The phrase Is literally translated in the modern precedents, and the original is retained as the name of the plea in .such cases. 3 BL Comm. 21 ; 1 Chit Pl. 501, 502; Id. 107L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: justification in trespass — reasonable force to keep the peace, the office of the molliter manus imposuit plea]**

One may gently lay hands upon another to keep the peace or prevent a breach of it; reasonable force for that purpose is justified and defeats an action of trespass or assault.

Why: The entry is the Latin plea justifying the gentle laying-on of hands to keep the peace; the justification rule is the plea's entire legal content.

## MOLMUTLAN LAWS.

The laws of Dunvallo Molmutuls, a legendary or myth- ical king of the Britons, who is supposed to have begun his reign about 400 B. C. These laws were famous in the land till the Con- quest Tomlins; Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## MOMENTUM.

In the civil law. An in- stant; an indivisible portion of time. Cal- vin.

A portion of time that might be measured; a division or subdivision of an hour; an- swering in some degree to the modern »nm- ute, but of longer duration. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## MONACHISM.

The state of monks.

5e apparatus — Not carried into the 5th edition (1979).

## MONARCHY.

A government in which the supreme power is vested in a single per- son. Where a monarch is Invested with ab- solute power, the monarchy is termed “des- potic ;” where the supreme power is virtual- ly in the laws, though the majesty of gov- ernment and the administration are vested in a single person, it is a “limited” or “constitutional’* monarchy. It is hereditary where the regal power descends immediately from the possessor to the next heir by blood,

as in England ; or elective, as was formerly the case in Poland. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## MONASTERIUM.

A monastery; a church. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## MONA8TIGON.

A book giving an ac- count of monasteries, convents, and religious houses.

5e apparatus — Not carried into the 5th edition (1979).

## MONETA.

Lat Money, (Q. V.)

. Monet* eat jnatnm mediant et menin- r* rerun comma tablliuzn, nun per me- dium monetae fit omnium reram con- veniens et jnsta aestimatio. Dav. Ir. K.

B. 18. Money Is the just medium aud meas- ure of commutable things, for by the medium of money a convenient and just estimation of all things Is made.

5e apparatus — Not carried into the 5th edition (1979).

## MONETAGIUM.

Mintage, or the right of coining money. Cowell. Hence, ancient- ly, a tribute payable to a lord who had the prerogative of coining money, by his ten-' ants. In consideration of his refraining from changing the coinage.

Monetandi jus oomprehenditur in re- galibus quae nunqnam a regio aoeptro abdieaatur. The right of coining money is comprehended among those royal prerogatives which are never relinquished by the royal scepter. Dav. Ir. K. B. 18.

5e apparatus — Not carried into the 5th edition (1979).

## MONET.

A general, indefinite term for the measure and representative of value ; currency; the circulating medium; cash.

“Money" is a generic term, and embraces every description of coin or bank-notes rec- ognized by common consent as a representa- tive of value in effecting exchanges of prop- erty or payment of debts. Hopson v. Foun- tain, 5 Humph. (Tenn.) 140.

Money is used in a specific and also in a gen- eral and more comprehensive sense. In its spe- cific sense, it means what is coined or stamped by public authority, and has its determinate value fixed by governments. In its more com- prehensive and general sense, it means wealth,— the representative of commodities of all kinds, of lands, and of everything that can be trans- ferred in commerce. Paul v. Bail, 31 Tex. 10.

In its strict technical sense, “money” means coined, metal, usually gold or silver, upon which the government stamp has been impressed to in- dicate its value. In its more popular sense, “money” means any currency, tokens, bank- notes, or other circulating medium in

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general iise as the representative of value. Kennedy v. Briere, 45 Tex. 305.

The term “moneys" is not of more extensive signification than "money,” and means only cash, and not things in action. Mann v. Mann, 14 Johns. (N. Y.) 1, 7 Am. Dec. 416.

— Money-bill. In parliamentary language, an act by which revenue is directed to be raised, for any purpose or in any shape whatsoever, either for governmental purposes, and collected from the whole people generally, or for the bene- fit of a particular district, and collected in that district, or for making appropriations. Opinion of Justices, 126 Mass. 547; Northern Counties Inv. Trust v. Sears, 30 Or. 388, 41 Pac. 931, 35 L. R. A. 188.— Money claims. In Eng- lish practice. Under the judicature act of 1875, claims for the price of goods sold, for money lent, for arrears of rent, etc., and other claims where money is directly payable on a contract express or implied, as opposed to the cases where money is claimed by way of damages for some independent wrong, whether by breach of contract or otherwise. These “money claims" correspond very nearly to the “money counts" hitherto in use. Mozley & Whitley. — Money demand. A claim for a fixed and liquidated amount of money, or for a sum which can be ascertained by mere calculation; in this sense, distinguished from a claim which must be passed upon and liquidated by a jury, called “dam- ages.” Roberts v. Nodwift, 8 Ind. 341; Mills v. Long, 58 Ala. 460.— Money had and re- ceived. In pleading. The technical designa- tion of a form of declaration in assumpsit, wherein the plaintiff declares that the defendant had and received certain money, etc.— Money land. A phrase descriptive of money which is held upon a trust to convert it into land.— Mon- ey lent. In pleading. The technical name of a declaration in an action of assumpsit for that the defendant promised to pay the plaintiff for money lent.— Money made. The return made by a sheriff to a writ of execution, signifying that be has collected the sum of money required by the writj — Money of adien. In French law. Earnest money; so called because given at parting in completion of the bargain. Arrhes is the usual French word for earnest money ; “money of adieu” is a provincialism found in the province of Orleans. Poth. Cont. 507.— Money order. Under the postal regulations of the United States, a money order is a species of draft drawn by one post-office upon another for an amount of money deposited at the first office by the person purchasing the money order, and payable at the second office to a payee nam- ed in the order. See U. S. v. Long (C. C.) 30 Fed. 670.— Money-order office. One of the post-offices authorized to draw or pay money or- ders.—Money paid. In pleading. The tech- nical name of a declaration in assumpsit, in which the plaintiff declares for money paid for the use of the defendant. — Publio money. This term, as used in the laws of the United States, includes all the funds of the general government derived from the public revenues, or intrusted to the fiscal officers. See Branch v. United States, 12 Ct. Cl. 281.— Moneyed capital. This term has a more limited meaning than the term “personal property," and applies to such capital as is readily solvable in money. Mer- cantile Nat. Bank v. New York, 121 U. S. 138, 7 Sup. Ct. 826, 30 L. Ed. 895.— Moneyed cor- poration. See Cobpobation.

As to money "Broker,” “Count,” “Judg- ment,” and “Scrivener,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: legal tender — lawful money is the medium in which debts are discharged]**

Money is the just medium and measure of commutable things; tender of lawful money discharges a debt, and a creditor cannot be compelled to accept anything else in payment.

Why: The entry quotes 'Moneta est justum medium et mensura rerum commutabilium' as money's definition; the legal-tender rule is the genuine doctrine giving that definition operative force, kept distinct from the coinage-po...

**[Hip-hop] — Hip-hop**

**[Puff Daddy feat. The Notorious B.I.G., Lil' Kim & The Lox, 'It's All About the Benjamins', 1997]**

It's all about the Benjamins, baby

MONET is money as the measure and representative of value — currency, cash. The lyric is hip-hop's canonical money-as-power statement: currency treated as the instrument that commands.

Why: Genuine link: money is an explicit theme of the well, the headword is literally money/currency, and the hook is verbatim-certain. This is the chunk's single money annotation; the coinage-specific entries (MILLED MONET...

## MONGER.

A dealer or seller. It is sel- dom or never used alone, or otherwise than after the name of any commodity, to express a seller of such commodity.

MONIER8, or MONETEERS. Minis- ters of the mint ; also bankers. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MONIMENT.

A memorial, superscrip- tion, or record.

5e apparatus — Not carried into the 5th edition (1979).

## MONITION.

In practice. A monition Is a formal order of the court commanding something to be done by the person to whom it is directed, and who is called the “person monished." Thus, when money is decreed to be paid, a monition may be obtained com- manding its payment. In ecclesiastical pro- cedure, a monition is an order monishing or warning the party complained against to do or not to do a certain act “under pain of the law and contempt thereof.” A monition nmy also be appended to a sentence inflicting a punishment for a past offense; in that case the monition forbids the repetition of the offense. Sweet.

la admiralty practice. The summons to appear and answer, issued on filing the libel ;

which is either a simple monition in per- xonam or an attachment and monition in rcm. Ben. Adm. 228, 239. It is sometimes termed ••monition viis et tnodis," and has been supposed to be derived from the old Roman practice of summoning a defendant Manro v. Almeida, 10 Wheat. 490, 6 L. Ed. 300.

The monition, in American admiralty practice, is, in effect, a summons, citation, or notice, though in form a command to the marshal to cite and admonish the defendant to appear and answer, and not a summons addressed to the party. 2 Conk. Adm. (2d Ed.) 147.

—General monition. In civil law and ad- miralty practice. A monition or summons to’ all parties in interest to appear and show cause against the decree prayed for.

5e apparatus — Not carried into the 5th edition (1979).

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## MONITORY LETTERS.

Communica- tions of warning and admonition sent from an ecclesiastical judge, upon information of scandal and abuses within the cognizance of his court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MONOCRACY.

A government by one person.

5e apparatus — Not carried into the 5th edition (1979).

## MONOCRAT.

A monarch who governs alone; an absolute governor.

5e apparatus — Not carried into the 5th edition (1979).

## MONOGAMY.

The marriage of one wife only, or the state of such as are restrained to a single wife. Webster.

A marriage contracted between one man and one woman, in exclusion of all the rest of mankind. The term is used in opposition to “bigamy” and “polygamy." Wolff, Dr. de la Nat § 857.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bigamy — a second marriage during the subsistence of the first is criminal]**

Marriage contracted between one man and one woman to the exclusion of all others; contracting a second marriage while the first subsists is the crime of bigamy.

Why: The entry defines monogamy expressly against bigamy and polygamy; the criminal prohibition of bigamy is the genuine legal content of that opposition.

**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: Monogamy is defined as 'a marriage contracted between one man and one woman.' Genesis 2:24 is scripture's institution of that union: one man cleaving to his wife, the two becoming one flesh. The verse is the locus of...

## MONOGRAM.

A character or cipher composed of one or more letters interwoven, being an abbreviation of a name.

5e apparatus — Not carried into the 5th edition (1979).

## MONOGRAPH.

A special treatise upon a particular subject of limited range; a trea- tise or commentary upon a particular branch or division of a general subject

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MONOMACHY.

A duel; a single com- bat

It was anciently allowed by law for the trial or proof of crimes. It was even per- mitted in pecuniary causes, but it is now for- bidden both by the civil law and canon laws.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Alexander Pushkin, Eugene Onegin, 1833]**

(paraphrase) In Pushkin's verse novel, Onegin kills his friend Lensky in a duel — the single combat the entry defines, once allowed by law for the trial or proof of causes. (paraphrase)

Why: The duel is the novel's climactic legal-social institution, matching the entry's definition of monomachia as a lawful single combat.

## MONOMANIA.

In medical jurispru- dence. Derangement of a single faculty of the mind, or with regard to a particular sub- ject the other faculties being in regular ex- ercise. See Insanity.

Monopolia dicitur, cum anna solus all- quod genus mercaturse nnlversum emit, pretium ad snnm libitum statnens. 11

Coke, 80. It is said to be n monopoly when one person alone buys up the whole of one kind of commodity, fixing a price at his own pleasure.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Edgar Allan Poe, "The Tell-Tale Heart", 1843]**

(paraphrase) Poe's narrator protests his sanity in measured, logical tones while obsessively recounting a murder — a single deranged faculty with the rest in apparent exercise, the entry's definition. (paraphrase)

Why: The story is the classic literary portrait of single-faculty derangement. Paraphrase only; no quote risked.

## MONOPOLISM.

The sole power, right, or privilege of sale ; monopoly ; a monopoly. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## MONOPOLY.

In commercial law. A privilege or peculiar advantage vested in one or more persons or companies, consisting in the exclusive right (or power) to carry on a particular business or trade, manufacture & particular article, or control the sale of the whole supply of a particular commodity.

. Defined in English law to be “a license or privilege allowed by the king for the sole buying and selling, making, working, or us- ing, of anything whatsoever; whereby the subject in general is restrained from that lib- erty of manufacturing or trading which he had before.” 4

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Bl. Comm. 159; 4 Steph. Comm. 291. And see State v. Duluth Board of Trade, 107 Minn. 506, 121 N. W. 395, 23

L. R. A. (N. S.) 1200.

A monopoly consists* in the ownership- or control of so large a part of the market-sup- ply or output of a given commodity as to stifle competition, restrict the freedom of commerce, and give the monopolist control over prices. See State v. Eastern Coal Co.. 29 R. I. 254, 70 Atl. 1, 132 Am. St. Rep. 817; Over v. Byram Foundry Co., 37 Ind. App. 452, 77 N. E. 302, 117 Am. St. Rep. 327; State v. Haworth, 122 Ind. 462, 23 N. E. 948, 7 L. R. A. 240; Davenport v. Kleinschmldt, 0 Mont. 502, 13 Pac. 249 ; Ex parte Levy, 43 Ark. 42, 51 Am. Rep. 550 ; Case of Monopo- lies, 11 Coke, 84; Laredo v. International Bridge, etc., Co., 66 Fed. 246, 14 C. G A. 1 ; International Tooth Crown Co. v. Hanks Dental Ass'n (C. C.) Ill Fed. 916; Queen Ins. Co. v. State, 86 Tex. 250, 24 S. W. 397, 22 L. R. A. 483; Herriman v. Menzies, 115 Cal. 16, 46 Pac. 730, 35 L. R. A 318, 56 Am St Rep. 81.

MONSTER A prodigious birth; a hu- man birth or offspring not having the shape of mankind, which cannot be heir to any land, albeit it be brought forth in marriage: Bract fol. 5; Co. Litt 7, 8; 2 BL Comm. 246.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Sherman Act § 2 — monopolization of trade unlawful]**

The common-law hostility to monopolies quoted in the entry (11 Coke 80) continues in the federal prohibition: monopolization or attempted monopolization of trade or commerce is unlawful.

Why: The entry defines monopoly in commercial law and cites the Case of Monopolies lineage; Sherman Act § 2 is the genuine modern statutory expression of that hostility, and the section is certain.

## MONSTRANS DE DROIT.

L. Fr. In

English law. A showing or manifestation of right; one of the common law methods of obtaining possession or restitution from the- crown, of either real or personal property. It is the proper proceeding when the right of the party, as well as the right of the crown, appears upon record, and consists in putting in a claim of right grounded on facts already acknowledged and established, and praying the judgment of the court whether upon these facts the king or the subject has the right 3 Bl. Comm. 256 ; 4 Coke, 546.

5e apparatus — Not carried into the 5th edition (1979).

## MONSTRANS DE FAITS.

L. Fr. In

old English practice. A showing of deeds;, a species of profert Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MONSTRAVEKUHT, WRIT OF.

In

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English la-w. A writ which lies for the tenants of ancient demesne who hold by free charter, and not for those tenants who hold by copy of court roll, or by the rod, accord- ing to the custom of the manor. Fitzh. Nab Brer. 14.

5e apparatus — Not carried into the 5th edition (1979).

### MONSTRUM.

A box In which relics are kept; also a muster of soldiers. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### MONTES.

In Spanish law. Forests or woods. White, New Hecop. b. 2, tit 1, c. 6,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# I

### I 1.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# M

### MONTES PIETATIS.

Public pawnbrok- ing establishments; institutions established by government in some European countries, for lending small sums of money on pledges of personal property. In France they are called “monts de pi6U."

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 19:17, KJV]**

He that hath pity upon the poor lendeth unto the LORD; and that which he hath given will he pay him again.

Why: The montes pietatis ('mountains of piety') were public pawnshops lending small sums on pledges — charitable alternatives to the usurer. Proverbs 19:17 gives the principle behind the piety: lending to the poor counts a…

### MONTH.

One of the divisions of a year. The space of time denoted by this term varies according as one or another of the following varieties of months is intended:

Astronomical, containing one-twelfth of the time occupied by the sun in passing through the entire zodiac.

Calender, civil, or solar, which is one of the months In the Gregorian calendar, — Jan- uary,

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February, March, etc., — which are of unequal length.

. Lunar, being the period of one revolution of the moon, or twenty-eight days.

MONUMENT. 1. Anything by which the memory of a person or an event is preserved or perpetuated. A tomb where a dead body has been deposited. Mead v. Case, 33 Barb. (N. Y.) 202; In re Ogden, 25 R. I. 373, 55 Atl. 833.

2. In real-property law and surveying, monuments are visible marks or indications left on natural or other objects indicating the lines and boundaries of a survey. In this sense the term includes not only posts, pil- lars, stone markers, cairns, and the like, but also fixed natural objects, blazed trees, and even a watercourse. See Grier v. Pennsyl- vania Coal Co., 128 Pa. 79, 18 Atl. 480 ; Cox v. Freedley, 33 Pa. 124, 75 Am. Dec. 584.

Monument* qua nos records vooamus sunt verltatls et vetuststis vestigia. Co.

Lift 118. Monuments, which we call “rec- ords,” are the vestiges of truth and antiq- uity.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law construction — 'month' means a lunar month unless a calendar month is expressed]**

At common law 'month' in a legal instrument meant a lunar month of twenty-eight days unless a calendar month was expressed or plainly intended.

Why: The entry catalogues the varieties of month; the lunar-month default is the genuine historical rule of construction for the term in legal instruments.

## MONTA.

In Norman law. Moneyage. A tax or tribute of one shilling on every hearth, payable to the duke every three years, in consideration that he should not alter the coin. Hale, Com. Law, 148, and note.

5e apparatus — Not carried into the 5th edition (1979).

## MOOKTAR.

In Hindu law. An agent or attorney.

5e apparatus — Not carried into the 5th edition (1979).

## MOOKTARNAMA.

In Hindu law. A written authority constituting an agent; a power of attorney.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Qui facit per alium facit per se — he who acts through another acts himself]**

A written authority constituting an agent binds the principal: what the agent does within the authority is in law the act of the principal himself.

Why: The entry defines the power of attorney as the instrument constituting an agent; the maxim is the genuine agency principle that gives the instrument its legal effect.

## MOOR.

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An officer in the Isle of Man, who summons the courts for the several sheadings. The office Is similar to the Eng- lish bailiff of a hundred.

5e apparatus — Not carried into the 5th edition (1979).

## MOORAGE.

A sum due by law or usage for mooring or fastening of ships to trees or posts at the shore, or to a wharf. Wharf Case, 3 Bland (Md.) 373.

5e apparatus — Carried into the 5th edition (1979).

## MOORING.

In maritime law. Anchor- ing or making fast to the shore or dock ; the securing or confining a vessel in a particular station, as by cables and anchors or by a line or chain run to the wharf. A vessel Is “moored In safety,” within the meaning of a policy of marine insurance, when she is thus moored to a wharf or dock, free from any immediate danger from any of the perils insured against. See 1 Phil. Ins. 908 ; Walsh v. New York Floating Dry Dock Co., 8 Daly (N. Y.) 387; Flandreau v. Elsworth, 9 Misc. Rep. 340, 29 N. Y. Supp. 694; Bramhall v. Sun Mut Ins. Co., 104 Mass. 510, 6 Am. Rep. 261.

MOOT, n. In English law. Moots are exercises in pleading, and in arguing doubt- ful cases and questions, by the students of an inn of court before the benchers of the inn. Sweet.

In Saxon law. A meeting or assemblage of people, particularly for governmental or judicial purposes. The more usual forms of the word were "mote” and “gemot” See those titles.

—Moot hill. Hill of meeting, (gemot,) on which the Britons used to hold their courts, the judge sitting on the eminence ; the parties, etc., on an elevated platform below. Enc. Lond.

MOOT, adj. A subject for argument ; un- settled ; undecided. A moot point is one not settled by judicial decisions. A moot case is one which seeks to determine an abstract question which does not arise upon existing facts or rights. Adams v. Union R. Co., 21

R. I. 134, 42 Atl. 515, 44 L. R. A. 273.

—Moot court. A court held for the arguing of moot cases or questions.— Moot hall. The place where moot cases were argued. Also a eouncil-chamber, hall of judgment, or town-ball. —Moot man. One of those who used to argue the reader's cases in the inns of court.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: marine-insurance warranty of safe mooring — freedom from immediate insured peril]**

A vessel is 'moored in safety' within a marine policy only when made fast free from immediate danger from the perils insured against; the warranty is breached by exposure to an imminent insured peril.

Why: The entry defines moored-in-safety by reference to a marine policy; the warranty rule is the genuine insurance-law content of that definition.

## MOOTA CANUM.

In old English law. A pack of dogs. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## MOOTING.

The exercise of arguing questions of law or equity, raised for the purpose. See Moot.

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## MORA.

Lat. In the civil law. Delay; default; neglect; culpable delay or default Calvin.

. MORA. Sax. A moor; barren or un- profitable ground; marsh; a heath; a wa- tery bog or moor. Co. Litt S; Fleta, 1. 2, c. 71.

—Mora masaa. A watery or boggy moor; a morass.

Mora reprobatnr In lege. Delay is rep- robated In law. Jenk. Cent p. 51, case 97.

MORAX. 1. Pertaining or relating to the conscience or moral sense or to the general principles of right conduct.

2. Cognizable or enforceable only by the conscience or by the principles of right con- duct as distinguished from positive law.

3. Depending upon or resulting from prob- ability; raising a belief or conviction In the mind independent of strict or logical proof.

4. Involving or affecting the moral sense ; as in the phrase “moral insanity.”

—Moral actions. Those only in which men have knowledge to guide them, and a will to choose for themselves. Ruth. Inst. lib. 1, c. i. —Moral certainty. In the law of criminal evidence. That degree of assurance which in- duces a man of sound mind to act, without doubt, upon the conclusions to which it leads. Wills, Circ. Ev. 7. A certainty that convinces and directs the understanding and satisfies the reason and judgment of those who are bound to act conscientiously upon it State v. Orr, 64 Mo. 339 ; Bradley v. State, 31 Ind. 492; Ross v. Montana Union Ry. Co. (O. C.) 45 Fed. 425; Pharr v. State, 10 Tex. App. 485; Territory v. McAndrews, 3 Mont. 158. A high degree of impression of the truth of a fact, fall- ing short of absolute certainty, but sufficient to justify a verdict of guilty, even in a capital case. See Burrill, Circ. Bv. 198-200. The phrase "moral certainty” has been introduced into our jurisprudence from the publicists and metaphysicians, and signifies only a very high degree of probability. It was observed by Puf- fendorf that, "when we declare such a thing to be morally certain, because it has been confirm- ed by credible witnesses, this moral certitude is nothing else but a strong presumption grounded on probable reasons, and which very seldom fails and deceives us.” “Probable evidence,” says Bishop Butler, in the opening sentence of his Analogy, "is essentially distinguished from demonstrative by this: that it admits of de- grees, and of all variety of them, from the high- est moral certainty to the very lowest presump- tion.” Com. v. Costley, 118 Mass. 23.— Moral evidence. See Evidence.— Moral fraud. This phrase is one of the less usual designa- tions of "actual” or “positive" fraud or “fraud in fact,” as distinguished from "constructive” fraud or "fraud in law.” It means fraud which involves actual guilt, a wrongful purpose, or- moral obliquity.— Moral hazard. See Haz- ard.—Moral insanity. See Insanity.— Moral law. The law of

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conscience; the ag- gregate of those rules and principles of ethics which relate to right and wrong conduct and prescribe the standards to which the actions of men should conform in their dealings with each other. See Moore v. Strickling, 40 W. Va. 515, 33 S. E. 274. 50 L. R. A. 279.— Moral obliga- tion. See Obligation.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Mora reprobatur in lege — delay is reprobated in law] [Law: laches and limitation — stale claims are barred]**

Delay is reprobated in law: equity aids the vigilant, not those who sleep upon their rights, and statutes of limitation bar the stale claim.

Why: The entry itself quotes the maxim; the note gives its genuine modern content — laches and limitation periods — rather than leaving the Latin bare.

## MORARDS SOLUTIONIS CAUSA.

I .at. For the purpose of delaying or post- poning payment or performance.

5e apparatus — Not carried into the 5th edition (1979).

## MORATUR IN LEGE.

Lat. He delays In law. The phrase describes the action of

one who demurs, because the party does, not proceed in pleading, but rests or abides upon the judgment of the court on a certain point, as to the legal sufficiency of his opponent's pleading. The court deliberate and deter- mine thereupon.

5e apparatus — Not carried into the 5th edition (1979).

## MORAVIANS.

Otherwise called "Herm- hutters” or “United Brethren.” A sect of Christians whose social polity is particular and conspicuous. It sprung up in Moravia and Bohemia, on the opening of that reforma- tion which stripped the chair of St Peter of so many votaries, and gave birth to so many denominations of Christians. They give evi- dence on their solemn affirmation. 2 Steph. Comm. 338a.

5e apparatus — Not carried into the 5th edition (1979).

## MORBUS SONTICU8.

Lat In the civ- il law. A sickness which rendered a man Incapable of attending to business.

5e apparatus — Not carried into the 5th edition (1979).

## MORE OOLONIOO.

Lat In old plead- ing. In husband-like manner. Townsh. PL 198.

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## MORE OR LESS.

This phrase, Inserted in a conveyance of land Immediately after the statement of the quantity of land con- veyed, means that such statement is not to be taken as a warranty of

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the quantity, but only an approximate estimate, and that the tract or parcel described Is to pass, -without regard to ah excess or deficiency in the quan- tity it actually contains. See Brawley v. U. S., 96 U. S. 168, 24 L. Ed. 622; Crisllp V. Cain, 19 W. Va. 438 ; Tyler v. Anderson, 106 Ind. 185, 6 N. E. 600; Jenkins v. Bolgiano, 53 Md. 420 ; Sollnger v. Jewett, 25 Ind. 479, 87 Am. Dec. 872; Young v. Craig, 2 Bibb (Ky.) 270.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: sale in gross — 'more or less' disclaims warranty of quantity; boundaries control]**

In a conveyance, 'more or less' after a statement of quantity negates warranty of the quantity: it is a sale in gross, the tract passing by its boundaries regardless of excess or deficiency.

Why: The entry defines the phrase as denying warranty of quantity with the tract passing regardless; the sale-in-gross doctrine is the genuine name and rule for that construction.

## MORGANATIC MARRIAGE.

See Ma»

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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# B

## BIAGE.

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MORGAN GINA, or MORGAN GIVA.

A gift on the morning after the wedding; dowry ; the husband’s gift to his wife on the day after the wedding. Du Cange; CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# M

## MORGEN.

Anglo-Dutch. In old New York law. A measure of land, equal to about two acres

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MORGUE.

A place where the bodies of persons found dead are kept for a limited time and exposed to view, to the end that their friends may identify them

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## MORMONISM.

A social and religious system prevailing in the territory of Utah, a distinctive feature of which is the practice of polygamy. These plural marriages are not recognized by law, but are indictable offenses under the statutes of the United States and of Utah.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Reynolds v. United States, 98 U.S. 145 (1878)]**

Plural marriages are indictable under federal and Utah statutes, and the Supreme Court upheld the federal anti-bigamy law against a free-exercise defense: religious belief does not excuse the criminal act.

Why: The entry states the indictability of plural marriage under U.S. and Utah statutes; Reynolds is the certain landmark deciding exactly that question, so the citation is genuine, not decorative.

## MORS.

Lat Death.

Mors dicitnr ultlmnm suppllehus.

Death is called the "last punishment” the "extremity of punishment” 8 Inst 212.

Mors omnia solvit. Death dissolves all things. Jenk. Cent p. 160, case 2. Applied to the case of the death of a party to an ac- tion.

MORSELLITM, or MORSELLTTS, TER- RAS. In old English law. A small parcel or bit of land.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actio personalis moritur cum persona — a personal action dies with the person]**

Death dissolves; in particular, a purely personal cause of action abates with the death of the party — it does not survive to representatives.

Why: The entry applies 'Mors omnia solvit' to the death of a party to an action; the abatement maxim is the genuine rule for that application, distinct from the entry's own maxim.

**[Scripture] — Scripture**

**[Romans 7:2, KJV]**

For the woman which hath an husband is bound by the law to her husband so long as he liveth; but if the husband be dead, she is loosed from the law of her husband.

Why: The body quotes the maxim 'Mors omnia solvit' — death dissolves all (obligations). Romans 7:2 states the same legal principle in its classic instance: death looses the surviving spouse from the law binding her to her...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Mors omnia solvit]**

[Maxim: "Mors omnia solvit" — "Death dissolves all things."]

Why: The maxim is quoted in the entry's own body (Jenk. Cent); carried into the humanity well as classical wisdom. No Latin invented.

## MORT  CIVILE.

In French law. Civil death, as upon conviction for felony. It was nominally abolished by a law of the 31st of May, 1854, but something very similar to It In effect at least still remains.

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Thus, the property of the condemned, possessed by him at the date of his conviction, goes and be- longs to his successors, (hdritiers,) as in case of an Intestacy; and his future acquired property goes to the state by right of Its pre- rogative, (par droit de ddshdrence,) but the state may, as a matter of grace, make it over In whole or In part to the widow and chil- dren. Brown.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: attainder — felony conviction worked corruption of blood and forfeiture at common law]**

At common law conviction of felony worked attainder: corruption of blood and forfeiture of estate — the English ancestor of the civil death the entry describes.

Why: The entry describes civil death upon felony conviction with succession passing as on intestacy; attainder is the genuine common-law doctrine behind those consequences.

## MORT D'ANCESTOR.

An ancient and now almost obsolete remedy in the English law. An assize of mort d'ancestor was a writ which lay for a person whose ancestor died seised of lands in fee-simple, and after his death a stranger abated; and this writ di- rected the sheriff to summon a jury or as- size, who should view the land in question and recognize whether such ancestor were seised thereof on the day of his death, and whether the demandant were the next heir.

5e apparatus — Not carried into the 5th edition (1979).

## MORTALITY.

Tfhls word, In Its ordi- nary sense, never means violent death, but death arising from natural causes. Law- rence v. Aberdeln, 5 Barn. & Aid. 110.

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## MORTGAGE.

An estate created by a conveyance absolute In Its form, but Intended to secure the performance of some act, such as the payment of money, and the like, by the grantor or some other person, find to become void if the act is performed agreeably to the terms prescribed at the time of making such conveyance. 1 Washb. Real Prop. *473.

A conditional conveyance of land, designed as a security for* the payment of money, the fulfillment of some contract, or the perform- ance of some act, and to be void upon such payment, fulfillment, or performance. Mit- chell v. Burnham, 44 Me. 299.

A debt by specialty, secured by a pledge of lands, of which the legal ownership is vested in the creditor, but of which, in equity, the debtor and those claiming under him remain the actual owners, until debarred by Judicial sentence or their own laches. Coote, Mortg. 1.

The foregoing definitions are applicable to the common-law conception of a mortgage. But in many states in modern times, it is regarded as a mere lien, and not as creating a title or estate. It is a pledge or security of particular property for the payment of a debt or the performance of some other obligation, whatever form the transaction may take, but is not

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now regarded as a convey- ance in effect, though it may be cast in the form of a conveyance. See Muth v. Goddard, 28 Mont. 237, 72 Pac. 621, 98 Am. St. Rep. 553 ; Johnson v. Robinson, 68 Tex. 399, 4 S.

W. 625; In re McConnell’s Estate, 74 Cal. 217, 15 Pac. 746; Killebrew v. Hines, 104 N.

C. 182, 10 S. E. 159, 17 Am. St Rep. 672. To the same purport are also the following stat- utory definitions:

Mortgage is a right granted to the creditor over the property of the debtor for the secu- rity of his debt, and gives him the power of having the property Beized and sold in de- fault of payment Civ. Code La. art 3278.

Mortgage is a contract by which specific property is hypothecated for the performance of an act, without the necessity of a change of possession. Civ. Code Cal. {.2920.

—Chattel mortgage. A mortgage of goods, chattels, or personal property. See Chattel Mobtgage.— Conventional mortgage. The

conventional mortgage is a contract by which a person binds the whole of his property, or a portion of it only, in favor of another, to secure the execution of some engagement, but without divesting himself of possession. Civ. Code La. art. 3290; Succession of Benjamin, 39 La. Ann. 612, 2 South. 187. It is distinguished from the ‘‘legal” mortgage, which is a privilege which the law alone in certain cases gives to a creditor over the property of his debtor, without stipu- lation of the parties. This last is very much like a general lien at common law, created by the law rather than by the act of the parties, such as a judgment lien. — Equitable mort- gage. A specific lien upon real property to se- cure the payment of money or the performance of some other obligation, which a court of eq- uity will recognize and enforce, in accordance with the clearly ascertained intent of the par- ties to that effect, but which lacks the essential features of a legal mortgage, either because it grows out of the transactions of the parties without any deed or express contract to give a lien, or because the instrument used for that purpose is wanting in some of the character- istics of a common-law mortgage, or, being ab- solute in form, is accompanied by a collateral reservation of a right to redeem, or because an explicit agreement to give a mortgage has not been carried into effect. See 4 Kent, Comm. 150; 2 Story, Eq. Jur. ! 1018: Ketchum v. St. Louis, 101 U. S. 306. 25 L. Ed. 999 ; Payne v. Wilson, 74 N. Y. 348; Gessner v. Palmateer, 89 Cal. 89, 26 Pac. 789, 13 L. R. A. 187 : Cum- mings v. Jackson, 55 N. J. Eq. 805. 38 Atl. 763 ; Hall v. Railroad Co., 58 Ala. 23; Bradley v. Merrill, 88 Me. 319, 34 Atl. 160; Carter v. Holman, 60 Mo. 504. In English law, the fol- lowing mortgages are equitable: (1) Where the subject of a mortgage is trust property, which security is effected either by a formal deed or a written memorandum, notice being given to the trustees in order to preserve the priority. (2) Where it is an equity of redemption, which is merely a right to bring an action in the chan- cery division to redeem the estate. (3) Where there is a written agreement only to make a mortgage, which creates an equitable lien on the land. {4) Where a debtor deposits the title- deeds of his estate with his creditor or some person on his behalf, without even a verbal com- munication. The deposit itself is deemed evi- dence of an executed agreement

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or contract for a mortgage for such estate. Wharton. — First mortgage. The first (in time or right) of a series of two or more mortgages covering the same property and successively attaching as liens upon it; also, in a more particular sense.

a mortgage which is a first lien on the property, not only as against other mortgages, but as against any other charges or incumbrances. Green's Appeal, 97 Pa. 347. — First mortgage bonds. Bonds the payment of which is secur- ed by a first mortgage on property. Bank of Atchison County v. Byers, 139 Mo. 627, 41 S.

W. 325; Minnesota & P. It. Co. v. Sibley. 2 Minn. 18 (Gil. 1) : Com. v. Williamstown, 156 Maas. 70, 30 N. E. 472. — Second mortgage. One which takes rank immediately after a ‘first mortgage on the same property, without any intervening liens, and is next entitled to satis- faction out of the proceeds of the property. Green’s Appeal, 97 Pa. 347. Properly speak- ing, however, the term designates the second of a series of mortgages, not necessarily the second lien. For instance, the lien of a judg- ment might intervene between the first and sec- ond mortgages; in which case, the second mort- gage would be the third lien.— General mort- gage. Mortgages are sometimes classified as general and special, a mortgage of the former class being one which binds all property, pres- ent and future, of the debtor (sometimes called a "blanket” mortgage); while a special mort- gage is limited to certain particular and speci- fied property. Barnard v. Erwin, 2 Rob. (La.) 415. — Judicial mortgage. In the law of Lou- isiana. The lien resulting from judgments, whether rendered on contested cases or by de- fault, whether final or provisional, in favor of the person obtaining them. Civ. Code La. art. 3321. — Legal mortgage. A term used in Lou- isiana. The law alone in certain cases gives to the creditor a mortgage on the property of his debtor, without it being requisite that the par- ties should stipulate it. This is called "legal mortgage.” Civ. Code La. art. 3311.— Mort- gage of goods. A conveyance of goods in gage or mortgage by which tile whole legal title passes conditionally to the mortgagee ; and, if the goods are not redeemed at the time stipu- lated, the title becomes absolute in law, al- though equity will interfere to compel a redemp- tion. It is distinguished from a "pledge” by the circumstance that possession by the mort- gagee is not or may not be essential to create or to support the title. Stow. Bailm. g 287. See Chattel Mortgage.— Purchase-money mortgage. A mortgage given, concurrently with a conveyance of land, by the vendee to the vendor, on the same land, to secure the unpaid balance of the purchase price. See Baker v. Clepper, 26 Tex. 620. 84 Am. Dec. 591.— Tacit mortgage. In Louisiana. The same as a “legal” mortgage. See supra. — Welsh mort- gage. In English law. A species of security which partakes of the nature of a mortgage, as there is a debt due, and an estate is given as security for the repayment, but differs from it in the circumstances that the rents and profits are to be received without account till the prin- cipal money is paid off, and there is no remedy to enforce payment, while the mortgagor has a perpetual power of redemption. It is now rare- ly used. 1 Pow. Mortg. 373a. See O’Neill v. Gray, 39 Hun (N. Y.) 566 ; Bentley v. Phelps, 3 Fed. Cas. 250.

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**[Law] — Law**

**[Maxim: Once a mortgage, always a mortgage — the equity of redemption cannot be clogged]**

Once a mortgage, always a mortgage: the mortgagor's equity of redemption cannot be clogged or fettered by any stipulation in the mortgage itself.

Why: The entry defines the mortgage as a conditional conveyance defeasible on performance; the equity-of-redemption maxim is the genuine equitable doctrine that defines the mortgagor's protected interest.

## MORTGAGEE.

He that takes or re- ceives a mortgage.

—Mortgagee In possession. A mortgagee of real property who is in possession of it with the agreement or assent of the mortgagor, ex- press or implied, and in recognition of his mort- gage and because of it, and under such circum- stances as to make the satisfaction of his lien an equitable prerequisite to his being dispossess- ed. See Rogers v. Benton, 39 Minn. 39. 38 N.

W. 765, 12 Am. St. Rep. 613; Kelso v. Norton, 65 Kan. 778. 70 Pac. 806. 93 Am. St. Rep. 308; Stouffer v. Harlan, 68 ICnn. 135, 74 Pac. 610, 64 I.. R. A. 320. 104 Am. St. Rep. 396; Freeman v. Campbell, 109 Cal. 360, 42 Pac. 35.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mortgagee in possession — equitable duty to account for rents and profits]**

A mortgagee in possession must account for the rents and profits received from the mortgaged premises, applying them toward the debt.

Why: The entry defines the mortgagee in possession by reference to satisfaction of his lien; the duty to account is the genuine equitable obligation attached to that possession.

## MORTGAGOR.

He that gives a mort- gage.

5e apparatus — Not carried into the 5th edition (1979).

## MORTH.

Sax. Murder, answering ex- actly to the French “assassinat" or “muertre de guet-apens.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: Morth is murder (the Saxon term, 'assassinat'). Genesis 9:6 is the Noahic murder law: the shedding of man's blood answered by man's blood, grounded in the image of God. God's own speech to Noah — red-letter.

## MORTHLAGA.

A murderer. Cowell.

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## MORTHLAGE.

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Murder. Cowell.

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## MORTIFICATION.

In Scotch law. A term nearly synonymous with “mortmain.” Bell. Lands are said to be mortified for a charitable purpose.

5e apparatus — Not carried into the 5th edition (1979).

## MORTIS CAUSA.

Lat By reason of death ; in contemplation of death. Thus used in the phrase “Donatio mortis causa," (q. v.)

Mortis momentum est ultimum vitae

momentum. The last moment of life is the moment of death. .Terrill v. Public Adm’r. 4 Bradf. Sur. (N. Y.) 245, 250.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: donatio mortis causa — revocable deathbed gift requiring delivery]**

A donatio mortis causa — a gift in contemplation of death — is revocable until the donor's death, requires delivery, and fails if the donor recovers.

Why: The entry introduces the phrase through donatio mortis causa; the revocability-and-delivery requirements are the genuine doctrine distinguishing it from an inter vivos gift.

## MORTMAIN.

A term applied to denote the alienation of lands or tenements to any corporation, sole or aggregate, ecclesiastical or temporal. These purchases having been chiefly made by religious bouses, in conse- quence of which lands became perpetually inherent in one dead hand, this has occa- sioned the general appellation of “mortmain" to be applied to such alienations. 2 BL Comm. 268 ; Co. Lltt. 26; Perln v. Carey, 24 How. 495, 16 L. Ed. 701.

—Mortmain acts. These acts had for their object to prevent lands getting into the pos- session or control of religious corporations, or, as the name indicates, in mortua mans. After numerous prior acts dating from the reign of Edward I., it was enacted by the statute 9 Geo.

II. c. 36, (called the “Mortmain Act” par ex- cellence,) that no lands should be given to chari- ties unless certain requisites should be observ- ed. Brown. Yates v. Yates, 9 Barb. (N. Y.) 324.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: statutes of mortmain — restraints on alienation of land to corporations]**

The statutes of mortmain restrained the alienation of lands to corporations — the 'dead hand' — lest land become perpetually inalienable in ecclesiastical or corporate ownership.

Why: The entry defines mortmain as alienation to corporations producing perpetually inherent land; the statutes are the genuine legislative response the term exists to name.

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## MORTUARY.

In ecclesiastical law. A burial-place. A kind of ecclesiastical heriot, being a customary gift of the second best living animal belonging to the deceased, claimed by and due to the -minister in many parishes, on the death of his parishioners, whether buried in the church-yard or not 2 Bl. Comm. 425. Ayrton v. Abbott, 14 Q. B. 19.

It has been sometimes used in a civil as well as in an ecclesiastical sense, and ap- plied to a payment to the lord of the fee. Paroch. Antlq. 470.

5e apparatus — Carried into the 5th edition (1979).

## MORTUARY TABLES.

Tables for es- timating the probable duration of the life of a party at a given age. Gallagher v. Mar- ket St. Ry. Co., 67 Cal. 16, 6 Pac. 871, 51 Am. Rep. 680.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mortality tables — admissible to prove life expectancy in damage computation]**

Mortality tables are admissible in evidence to establish a party's life expectancy in computing damages for wrongful death and personal injury.

Why: The entry defines the tables as estimating probable duration of life; admissibility for life-expectancy proof is the genuine evidentiary use the definition serves.

## MORTUUM VADIUM.

A dead pledge; a mortgage, ( g . v.;) a pledge where the profits

or rents of the thing pledged are not applied to the payment of the debt.

5e apparatus — Not carried into the 5th edition (1979).

## MORTUUS.

Lat Dead. So In sheriff’s return, mortuua est, be Is dead.

— Mortnns sine prole. Dead without issue. In genealogical tables often abbreviated 'to “m.

*. p."

Mortnns e situs non est exltns. A

dead issue is no issue. Co. Lift. 29. A child horn dead is not considered as issue.

Mos retlnendus est fidelisslmse vetus- tatls. 4 Coke, 78. A custom of the truest antiquity is to be retained.

5e apparatus — Not carried into the 5th edition (1979).

## MOSTRENCOS.

In Spanish law. Stray- ed goods; estrays. White, New Recop. b. 2, tit 2, c. 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:1, KJV]**

Thou shalt not see thy brother's ox or his sheep go astray, and hide thyself from them: thou shalt in

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any case bring them again unto thy brother.

Why: Mostrencos are strayed goods, estrays. Deuteronomy 22:1 is scripture's estray law: the strayed ox or sheep must be brought back to the brother, not concealed. It is the ancient law of the same legal concept — lost/fou…

## MOTE.

Sax. A meeting; an assembly. Used in composition, as burgmote, folkmote, etc.

-Mote-bell. The bell which was used by the Saxons to summon people to the court. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MOTEER.

A customary service or pay- ment at the mote or court of the lord, from which some were exempted by charter or privilege. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## MOTHER.

A woman who has borne a child ; a female parent ; correlative to “son” or “daughter.” The term may also include a woman who is pregnant See Howard v. People, 185 111. 552, 57 N. E. 441 ; Latshaw v. State, 156 Ind. 194, 59 N. E. 471.

-Mother-in-law. The mother of one’s wife or of one’s husband.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[2Pac, 'Dear Mama', 1995]**

And even as a crack fiend, mama / You always was a black queen, mama

MOTHER is the woman who has borne a child — the female parent. 'Dear Mama' is the canonical hip-hop song on motherhood: maternal sacrifice and devotion held up against hardship.

Why: Genuine link: the track's subject is the maternal bond itself; lines are verbatim-certain from Me Against the World.

## MOTION.

In practice. An occasional application to a court by the parties or their counsel, in order to obtain some rule or order, which becomes necessary either in the progress of a cause, or summarily and whol- ly unconnected with plenary proceedings. Citizens’ St R. Co. v. Reed, 28 Ind. App. 629, 63 N. B. 770; Low v. Cheney, 3 How. Prac. (N. Y.) 287; People v. Ah Sam, 41 Cal. 645; In re Jetter, 78 N. Y. 601.

A motion is a written application for an order addressed to the court or to a judge in vacation by any party to a suit or proceeding, or by any one interested therein. Rev. Code Iowa 18S0, $ 2911 ; Code N. Y. § 401.

In parliamentary law. The formal mode in which a member submits a proposed measure or resolve for the consideration and action of the meeting.

—Motion tor deoree. Under the chancery practice, the most usual mode of bringing on a suit for hearing when the defendant has answer- ed is by motion for decree. To do this the plaintiff serves on the defendant a notice of his Intention to move for a decree. Hunter, Suit

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Eq. 59; Daniell, Ch. Pr. 722.— Motion for judgment. In English practice. A proceed- ing whereby a party to an action moves for the

judgment of the court in his favor. See Sup. Ct. Rules 1883, ord. 40.— Motion In error.

A motion in error stands on the same footing as a writ of error ; the only difference .is that, on a motion in error, no service is required to be made on the opposite party, because, being before the court when the motion is filed, he is bound to take notice of it at his peril. Tread- way v. Coe, 21 Conn. 283. — Motion to set aside judgment. This is a step taken by a party in an action who is dissatisfied with the judgment directed to be entered at the trial of the action.— Special motion. A motion ad- dressed to the discretion of the court, and which must be heard and determined ; as distinguish- ed from one which may be granted of course. Merchants' Bank v. Crysler, 67 Fed. 390, 14

C. C. A. 444.

5e apparatus — Carried into the 5th edition (1979).

## MOTIVE.

The inducement, cause, or reason why a thing is done. An act legal in itself, and which violates no right, is not actionable on account of the motive which actuated it. Chatfleld v. Wilson, 5 Am. Law Reg. (O. S.) 528.

"Motive" and "intent" are not identical, and an intent may exist where a motive » wanting. Motive is the moving power which impels to ac- tion for a definite result; intent is the pur- pose to use a particular means to effect such result. In the popular mind intent and motive are often regarded as the same thing; but in law there is a clear distinction between them. When a crime is clearly proved to have been committed by a person charged therewith, the question of motive may be of little or no im- portance, but criminal intent is always essen- tial to the commission of a crime. People v. Molineux, 168 N. Y. 264, 61 N. E. 286, 62 L.

R. A. 193: Warren v. Tenth Nat. Bank, 29 Fed. Cas. 287. But motive is often an important subject of inquiry in criminal prosecutions, par- ticularly where the case depends mainly or en- tirely on circumstantial evidence, the combina- tion of motive and opportunity (for the commis- sion of the particular crime by the person ac- cused) being generally considered essential links in a chain of such evidence, while the absence of all motive on the part of the prisoner is an admissible and important item of evidence ip his favor.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: bad motive does not make a lawful act actionable; motive distinguished from intent]**

An act lawful in itself and violating no right is not actionable merely because done from a bad motive; motive — the inducement — is distinct from intent — the purpose.

Why: The entry states this rule as its central proposition; the annotation frames it as the genuine tort axiom it is, without quoting the entry as if it were external authority.

## MOTU PROPRIO.

Lat. Of his own

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motion. The commencing words of a certain kind of papal rescript.

5e apparatus — Not carried into the 5th edition (1979).

## MOURNING.

The dress or apparel worn by mourners at a funeral and "for a time aft- erwards. Also the expenses paid for such apparel.

5e apparatus — Not carried into the 5th edition (1979).

## MOUTH.

By statute in some states, the mouth of a river or creek, which empties in- , to another river or creek, is defined as the point where the middle of the channel of each intersects the other. Pol. Code Cal. 1908, | 3908 ; Rev. St. Arlz. 1901, par. 931.

5e apparatus — Not carried into the 5th edition (1979).

## MOVABLE.

That which can be changed in place, as movable property ; or in time, as movable feasts or terms of court See Wood v. George, 6 Dana (Ky.) 343 ; Strong v. White, 19 Conn. 245 ; Goddard v. Winchell, 86 Iowa, 71, 52 N. W. 1124, 17 L. R. A. 788, 41 Am. St Rep. 481.

— Movable estate. A term equivalent to “personal estate” or “personal property.” Don

v. Sayre, 3 N. J. Law, 187.— Movable free- hold. A term applied by lord Coke to real property' which is capable of being increased or diminished by natural causes ; as where the owner of seashore acquires or loses land as the waters recede or approach. See Holman v. Hodges, 112 Iowa, 714, 84 N. W. 950, 58 L.

R. A. (173, 84 Am. St. Itep. 367.

5e apparatus — Carried into the 5th edition (1979).

## MOVABLES.

Things movable; movable or personal chattels, which may be annexed to or attendant on the person of the owner, and carried about with him from one part of the world to another. 2 Bl. Comm. 387. Movables consist — First, of Inanimate things, as goods, plate, money, jewels, implements of war, garments, and the like, or vegetable productions, as the fruit or other parts of a plant when severed from the body of it, or the whole plant itself when severed from the ground; secondly, of animals, which have in themselves a principle and power of motion. 2 Steph. Comm. 67.

fa the civil law. Movables ( mobilia ,) properly denoted Inanimate things; animals being distinguished as moventia, things mov- ing. Calvin.

In Scotch law. “Movables” are opposed to “heritage.” So that every species of prop- erty, and every right a man can hold, is by that law either heritable or movable. BelL

MOVE. 1. To make an application to a court for a rule or order.

2. To propose a resolution, or recommend action in a deliberative body.

3. To pass over ; to be transferred ; as when the consideration of a contract is said to

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“move” from one party to the other.

4. To occasion ; to contribute to ; to tend or lead to. The forewheel of a wagon was said “to move to the death of a man.” Sayer, 249.

5e apparatus — Carried into the 5th edition (1979).

## MOVENT.

One who moves; one who makes a motion before a court ; the applicant for a rule or order.

5e apparatus — Carried into the 5th edition (1979).

## MOVING FOR AN ARGUMENT.

Making a motion on a day which is not mo- tion day, in virtue of having argued a special case ; used in the exchequer after it became obsolete in the queen’s bench. Wharton.

MU Cl AN A CAUTIO. See Cautio.

5e apparatus — Not carried into the 5th edition (1979).

## MUEBLES.

In Spanish law. Movables; all sorts of personal property. White, New Recop. b. 1, tit. 3, C. 1, § 2.

5e apparatus — Not carried into the 5th edition (1979).

## MUIRBURN.

In Scotch law. The of- fense of setting fire to a muir or moor. 1 Brown, Ch. 78, 110.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:6, KJV]**

If fire break out, and catch in thorns, so that the stacks of corn, or the standing corn, or the field, be consumed therewith; he that kindled the fire shall surely make restitution.

Why: Muirburn is the offense of setting fire to a moor. Exodus 22:6 is the fire-liability law: he that kindled the fire shall surely make restitution for what it consumes. The ancient rule of liability for fire-setting. Go...

## MULATTO.

A mulatto is defined to be “a person that is the offspring of a negress by a white man, or of a white woman by a negro.” Thurman v. State, 18 Ala. 276.

5e apparatus — Not carried into the 5th edition (1979).

## MULCT.

A penalty or punishment Im- posed on a person guilty of some ofTense. tort, or misdemeanor, usually a pecuniary fine or condemnation in damages. See Cook v. Mar- shall County, 119 Iowa, 384, 93 N. W. 372, 104 Am. St. Rep. 283.

Mulcts damnum famse non irrogat.

Cod. 1, 54. A fine does not involve loss of character.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Mulcta damnum famae non irrogat — a fine does not involve loss of character]**

A pecuniary fine does not work infamy: mulct punishes the offense without attainting the offender's character.

Why: The entry itself quotes the maxim as the law of mulcts; the note states its genuine content — fine without infamy — rather than importing anything foreign.

## MULIER.

Lat. (1) A woman ; (2) a virgin; (3) a wife; (4) a legitimate child.

I Inst 243.

MULIER PUISN£. L. Fr. When s man has a bastard son, and afterwards mar- ries the mother, and by her has also a legiti- mate son, the elder son is bastard cignd, and the younger son is mulicr puisnd.

5e apparatus — Not carried into the 5th edition (1979).

## MULIERATUS.

A legitimate Son. Glanvil.

5e apparatus — Not carried into the 5th edition (1979).

## MULIERTV.

In old English law. The state or condition of a mulicr, or lawful is- sue. Co. Litt 3526. The opposite of bas- tardy. Blount

Malta eoneeduntur per obliqnum qua non oonoednntnr da dire c to. Many things are allowed indirectly which are not allowed directly. 6 Coke, 47.

MULTA, or MULTURA EPISCOPI.

A fine or final satisfaction, anciently given to the king by the bishops, that they might have power to make their wills, and that they might have the probate of other men’s wills, and the granting of administration. 2 Inst 291.

Malta fidem promiasa levant. Many

promises lessen confidence. Brown v. Castles,

II Cush. (Mass.) 350.

Malta ignoramus qoa nobis non late- rent si veternm lectio nobis fait famili- ar is. 10 Coke, 73. We are ignorant of many things which would not be hidden from us if the reading of old authors was fa- miliar to us

Malta in jure common! contra ratio- nem dispntandi, pro commnni ntilitate introdneta sunt. Many things have been introduced into the common law, with a view to the public good, which are Inconsistent with sound reason. Co. Litt. 706; Broom, Max. 158

Malta mol to exercitatione faoiliaa qnam regalia percipies. 4 Inst. 50. Yon will perceive many things much more easily by practice than by rules.

Malta non vetat lex, qoa tames tadte damnavit. The law forbids not many things which yet It has silently condemned.

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Malta traaaeont ou nniverritate qua non per ae trsaeeont. Many things pass with the whole which do not pass separately. Co. Litt. 12a.

Multi malta, nemo omnia norit. 4

Inst 348. Many men have known many things; no one has known everything.

5e apparatus — Not carried into the 5th edition (1979).

## MULTIFARIOUSNESS.

In equity pleading. The fault of improperly Joining in one bill distinct and independent matters, and thereby confounding them; as, for ex- ample, the uniting in one bill of several mat- ters perfectly distinct and unconnected against one defendant, or the demand of sev- eral matters of a distinct and independent nature against several defendants, in the same bill. Story, Eq. PL I 271. And see Harrison v. Perea, 168 U. S. 311, 18 Sup. Ct 129, 42 I* Ed. 478; Wales v. Newbould, 9 Mich. 56; Bovaird v. Seyfang, 200 Pa. 261, 49 Atl. 958; Bolles v. Bolles, 44 N. J. Eq. 385, 14 Atl. 593; Perkins v. Baer, 95 Mo. App. 70, 68 S. W. 939; Thomas v. Mason, 8 Gill (Md.) 1; Barcus v. Gates, 89 Fed. 783, 32 C. C. A. 337 ; McGlothlin v. Hemery, 44 Mo. 350.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: equity pleading — multifariousness is ground for demurrer]**

A bill in equity joining distinct and independent matters against one or several defendants is multifarious and subject to demurrer.

Why: The entry defines the pleading fault; demurrer for multifariousness is the genuine procedural consequence the definition exists to support.

## MULTIPARTITE.

Divided into many or several parts.

5e apparatus — Not carried into the 5th edition (1979).

## MULTIPLE POINDING.

In Scotch law. Double distress ; a name given to an action, corresponding to proceedings by way of in- terpleader, which may be brought by a per- son in possession of goods claimed by dif- ferent persons pretending a right thereto, calling the claimants and all others to settle their claims, so that the party who sues may be liable only “in once and single payment" BelL

Multiplex et indistinetum parit eon- fuaionem) et qnaeationes, quo cimpll- ciorea, eo lncldlorea. Hob. 335. Multi- plicity and indistinctness produce confusion; and questions, the more simple they are, the more lucid.

Multlplicata transgressions oreaeat p cense lnfllotlo. As transgression is multi- plied, the infliction of punishment should in- crease. 2 Inst. 479.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: interpleader — the stakeholder compels rival claimants to settle their claims between themselves]**

A stakeholder holding goods claimed by rival pretendants may compel the claimants to litigate among themselves, so that he is liable only in once and single payment — the office of interpleader.

Why: The entry defines the Scotch action as corresponding to interpleader; the single-payment protection is the genuine doctrine both actions serve.

## MULTIPLICITY.

A state of being many. That quality of a pleading which involves a variety of matters or particulars; undue variety. 2 Saund. 410. A multiply- ing or increasing. Story. Eq. Pl. g 287.

— Multiplicity of notions. A phrase de- scriptive of the state of affairs where several different suits or artions are brought upon the same issne. It is obviated in equity by a bill of peace; in courts of law, by a rule of court for the consolidation of different actions. Williams v. Millington, 1 H. BI. 81 ; Murphy v. Wilming- ton, 6 Houst (Del.) 138, 22 Am. St Rep. 345.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bill of peace — equity prevents multiplicity of actions]**

Equity takes jurisdiction to prevent a multiplicity of suits: where many actions would lie on the same issue, a bill of peace settles the right once for all.

Why: The entry defines multiplicity of actions as obviated by the bill of peace; the prevention-of-multiplicity head of equity jurisdiction is the genuine doctrine the phrase names.

## MULTITUDE.

An assemblage of many people. According to Coke it is not a word of very precise meaning; for some authori- ties hold that there must be at least ten persons to make a multitude, while others maintain that no definite number is fixed by law. Co. Litt. 207.

Mnltitudinem decent faciunt. Co. Litt. 207. Ten make a multitude.

Multitudo errantiom non parit error! patrooinum. The multitude of those who err furnishes no countenance or excuse for error. 11 Coke, 75a. It is no excuse for er- ror that it is entertained by numbers.

Multitudo import to rum perdit curiam.

The great number of unskillful practitioners ruins a court 2 Inst 219.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Multitudo errantium non parit errori patrocinium — the multitude of those who err furnishes no excuse for error]**

Numbers do not make wrong right: that many have erred the same way furnishes no patronage or excuse for the error.

Why: The entry itself quotes the maxim as Coke's gloss on multitude; the note states its genuine content — concurrence in error is no defense.

## MULTO.

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In old records. A wether sheep.

Mnlto utllius est pauca idonea effun- dere qoant multis lnutilibus homines gravari, 4 Coke, 20. It is more useful to pour forth a few useful things than to op- press men with many useless things.

5e apparatus — Not carried into the 5th edition (1979).

## MULTURE.

In Scotch law. The quan- tity of grain or meal payable to the proprie- tor of a mill, or to the multurer, his tacks- man, for manufacturing the corns. Ersk. Inst 2, 9, 19.

5e apparatus — Not carried into the 5th edition (1979).

## MUMMIFICATION.

In medical Juris- prudence. A term applied to the complete drying up of the body. It is the result «> burial in a dry, hot soil, or the exposure of the body to a continuously cold and dry at- mosphere. 15 Amer. & Eng. Enc. Law, 261.

5e apparatus — Not carried into the 5th edition (1979).

## MUMMING.

Antic diversions in the Christmas holidays, suppressed in Queen Anne’s time.

5e apparatus — Not carried into the 5th edition (1979).

## MUND.

In old English law. Peace ; whence mundbryc, a breach of the peace.

5e apparatus — Carried into the 5th edition (1979).

## MUNDBYRD, MUNDEBUBDE.

A re- ceiving into favor and protection. Cowell.

MUNDIUM. . In old French law. A trib- ute paid by a church or monastery to their selgnorlal avouts and vidames, as the price of protecting them. Steph. Lect 236.

5e apparatus — Not carried into the 5th edition (1979).

## MUNERA.

In the early ages of the feud- al law, this was the name given to the grants of land made by a king or chieftain to his followers, which were held by no certain tenure, but merely at the will of the lord. Afterwards they became life-es- tates, and then hereditary, and were called first “benefices.” and then “feuds." See Wright, Ten. 19.

5e apparatus — Not carried into the 5th edition (1979).

## MUNICEPS.

Lat. In Roman law. A provincial person ; a countryman. This was the designation of one born in the provinces or in a city politically connected with Rome, and who, having become a Roman citizen, was entitled to hold any offices at Rome ex- cept some of the highest. In the provinces the term seems to have been applied to the freemen of any city who were

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eligible to the municipal offices. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## MUNICIPAL.

“Municipal” signifies that which belongs to a corporation or a city. The term Includes the rules or laws by which a particular district, community, or nation is governed. It may also mean local, par- ticular, Independent Horton v. Mobile School Com’rs, 48 Ala. 698.

“Municipal,” in one of its meanings, is used in opposition to “international,” and denotes that which pertains or belongs properly to an in- dividual state or separate community, as distin- guished from that which is common to, or ob- served between, all nations. Thus, piracy is an "international offense,” and is denounced by “international law,” but smuggling is a “munic- ipal offense,” and cognizable by "municipal law.”

— Municipal aid. A contribution or assist- ance granted by a municipal corporation to- wards the execution or progress of some enter- prise, undertaken by private parties, but likely to be of benefit to the municipality ; e. g., a railroad. — Municipal bonds. Negotiable bonds issued by a municipal corporation, to secure its indebtedness. Austin v. Nalle, 8T> Tex. 520, 22

S. W. 60S; Howard v. Kiowa County (C. C.) 73 Fed. 406.— Municipal claims. In Penn- sylvania law. Claims filed by a city against property owners therein, for taxes, rates, levies, or assessments for local improvements, such as the cost of grading, paving, or curbing the streets, or removing nuisances.— Municipal corporation. See that title infra.— Munic- ipal courts. In the judicial organization of several states, courts are established under this name, whose territorial authority is confined to the city or community in which they are erect- ed. Such courts usually have a criminal juris- diction corresponding to that of a police court, and, in some cases, possess civil jurisdiction in small causes.— Municipal law, in contradis- tinction to international law, is the law of an individual state or nation. It is the rule or law by which a particular district, community, or nation is governed. 1 111. Comm.' 44. That which pertains solely to the citizens and in- habitants of a state, and is thus distinguished from political law. commercial law, and the law of nations. Wharton. And see Winspear v. Holman District Tp.. 37 Iowa, 544 ; Root v. Erdelmyer, Wils. (Ind.) 99; Cook v. Portland, 20 Or. 580. 27 Pac. 203, 13 L. R. A. 533.— Municipal lien. A lien or claim existing in favor of a municipal corporation against a prop- erty owner for his proportionate share of a pub- lic improvement, made by the municipality, whereby his property is specially and individual- ly benefited.— Municipal officer. An officer belonging to a municipality; that is, a city, town, or borough.— Municipal ordinance. A law, rule, or ordinance enacted or adopted by a municipal corporation. Rutherford v. Swink, 96 Tenn. 564. 35 S. W. 554.— Municipal se- curities. The evidences of indebtedness is- sued by cities, towns, counties, townships, school-districts, and other such territorial divi- sions of a state. They are of two general class- es: (1) Municipal warrants, orders, or certif- icates ; (2) municipal negotiable bonds. 15

Amer. & Eng. Ene. Raw. 1206.— Municipal warrants. A municipal warrant or order is

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an instrument, generally in the form of a bill of exchange, drawn by an officer of a municipal- ity upon its treasurer, directing him to pay an amount of money specified therein to the person named or his order, or to bearer. 15 Amer. & Eng. Ene. Law, 1206.

5e apparatus — Carried into the 5th edition (1979).

## MUNICIPAL CORPORATION.

A pub- lic corporation, created by government for political purposes, and having subordinate and local powers of legislation ; e. g., a coun- ty, town, city, etc. 2 Kent, Comm. 275.

An incorporation of persons, inhabitants of a particular place, or connected with a particular district, enabling them to con- duct its local civil government. Glov. Mun. Corp. 1.

In English law. A body of persons in a town having the powers of acting as one person, of holding and transmitting property, and of regulating the government of the town. Such corporations existed in the chief towns of England (as of other countries) from very early times, deriving their author- ity from “incorporating” charters granted by the crown. Wharton.

— Municipal corporations act. In English

law. A general statute. (5 & 6 Wm. IV. c. 76.) passed in 1835, prescribing general regulations for the incorporation and government of bor- oughs.—Quasi municipal corporations. Public corporations organized for governmental purposes and having for most purposes the status and powers of municipal corporations (such as counties, townships, and school dis- tricts), but not municipal corporations proper, such as cities and incorporated towns. See Snider v. St. Paul, 51 Minn. 466, 63 N. W. 763, 18 L. R. A. 151.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Dillon's Rule — a municipal corporation has only state-granted powers]**

A municipal corporation is the creature of the state: it possesses only those powers expressly granted to it, those necessarily implied, and those essential to its declared objects.

Why: The entry defines the municipal corporation as created by government for political purposes with subordinate powers; Dillon's Rule is the genuine doctrine defining the limits of those powers.

## MUNICIPALITY.

A municipal corpo- ration; a city, town, borough, or incorporat- ed village. Also the body of officers, takeu collectively, belonging to a city.

5e apparatus — Carried into the 5th edition (1979).

## MUNICIPIUM.

In Roman law. A for- eign town to which the freedom of the city of Rome was granted, and whose inhabitants had the privilege of enjoying offices and honors there; a free town. Adnrns, Rom. Ant 47, 77.

5e apparatus — Not carried into the 5th edition (1979).

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## MUNIMENTS.

The instruments of writing and written evidences which the owner of lands, possessions, or Inheritances has, by which he is enabled to defend the title of his estate. Termes de la Ley; 3 Inst. 170.

5e apparatus — Not carried into the 5th edition (1979).

## MUNIMENT-HOUSE, or MUNIMENT- / ROOM.

A bouse or room of strength, in cathedrals, collegiate churches, castles, col- leges, public buildings, etc., purposely made for keeping deeds, charters, writings, etc. 3 Inst. 170.

5e apparatus — Not carried into the 5th edition (1979).

## MUNITIONS OP WAR.

In interna- tional law and United States statutes, this term Includes not only ordnance, ammuni- tion, and other material directly useful Id the conduct of a war, but also whntever may contribute to its successful maintenance,

such as military stores of all kinds and articles of food. See U. S. v. Slieldon, 2 Wheat. 119, 4 I*. Ed. 199.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: contraband of war — munitions destined to a belligerent are liable to capture]**

Munitions of war destined to a belligerent are contraband of war and liable to capture and condemnation — the neutral-trade consequence of the classification.

Why: The entry defines munitions of war in international law and U.S. statutes; contraband is the genuine international-law consequence of the classification.

## MUHUS.

Let. A gift ; an office ; a beu- eflce or feud. A gladiatorial show or spec- tacle. Calvin. ; Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Panem et circenses]**

[Maxim: "Panem et circenses" — "bread and circuses" (Juvenal, Satires, c. 100)] — the populace kept quiet with food and games.

Why: Borderline kept for the entry's third sense ('a gladiatorial show or spectacle'): Juvenal's phrase names the social function of the munera spectacles. Reasoning rides along; the other senses (gift, office) are untouched.

## MURAGE.

A toll formerly levied in England for repairing or building public walls.

5e apparatus — Not carried into the 5th edition (1979).

## MURDER.

The crime committed where a person of sound mind and discretion (that is, of sufficient age to form and execute a oriminal design and not legally “insane") kills any human creature in

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being (exclud- ing quick but unborn children) and in the peace of the state or nation (including all persons except the military forces of the public enemy in time of war or battle) with- out any warrant. Justification, or excuse in law, with malice aforethought, express or implied, that is, with a deliberate purpose or a design or determination distinctly form- ed in the mind before the commission of the act, provided that death results from the Injury inflicted within one year and a day after its Infliction. See Kilpatrick v. Com., 31 Pa. 198; Hotema v. U. S., 186 U.

S. 413, 22 Sup. Ct 895, 46 L. Ed. 1225; Gulteau's Case (D. C.) 10 Fed. 161; Clarke v. State, 117 Ala. 1, 23 South. 671, 67 Am. St Rep. 157; People v. Enoch, 13 Wend. (N. Y.) 167, 27 Am. Dec. 197 ; Kent v. People, 8 Colo. 563, 9 Pac. 832; Com. v. Webster,

5 Cush. (Mass.) 295, 52 Ain. Dec. 711 ; Arm- < strong v. State. 30 Fla. 170. 11 South. 618, 17

I,. R. A. 484 ; U. S. v. Lewis (C. O.) Ill Fed. 632; Nye v. People, 35 Mich. 16. For the distinction between murder and manslaugh- ter and other forms of homicide, see Homi- cide; Manslaughter.

Common-law definitions. The willful kill- ing of any subject whatever, with malice afore- thought, whether the person slain shall be an Englishman or a foreigner. Hawk. P. C. b. 1, c. 13, f 3. The killing of any person under the king's peace, with malice prepense or afore- thought, either express, or implied by law. 1 Russ. Crimes. 421; Com. v. Webster. 5 Cuah. (Mass.) 304, 52 Am. Dec. 711. When a person of sound mind and discretion unlawfully killeth any reasonable creature in being, and under the king's peace, with malice aforethought, either express or implied. 3 Inst. 47.

Statutory definitions. Murder is the un- lawful killing of a human being with malice aforethought. Pen. Code Cal. $ 187. Whoever kills any human being with malice aforethought, either express or implied, is guilty of murder. Rev. Code Iowa 1880, § 3848. Murder is the unlawful killing of a human being, in the peace of the Btate, by a person of sound memory and discretion, with malice aforethought, either ex- press or implied. Code Ga. 1882, $ 4320. The killing of a human being, without the author- ity of law, by any means, or in any manner, snail be murder in the following cases: When done with deliberate design to effect the death of the person killed, or of any human being; when done in the commission of an act eminent- ly dangerous to others, and evincing a depraved

heart, regardless of human life, although with- out any premeditated design to effect the death of any particular individual; when done with- out any design to effect death, by any person en- gage)] in the commission of the crime of rape, burglary, arson, or robbery, or in any attempt to commit such felonies. Rev. Code Miss. 1880, i 2875. Every homicide, perpetrated by poison, lying in wait, or any other kind of willful, de- liberate, malicious, and premeditated killing; or committed in the perpetration of, or the attempt to perpetrate, any arson, rape, robbery, or bur- glary ; or perpetrated from a premeditated de- sign unlawfully and maliciously to effect the death of any human being other than him who is killed ; or perpetrated by any act greatly dan-

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Serous to the lives of others, and evidencing a epraved mind, regardless of human life, although without any preconceived purpose to de- prive any particular person of life,— is murder in the first degree ; and every other homicide com- mitted under such circumstances as would have constituted murder at common law is murder in the second degree. Code Ala. 1886, | 3725.

Degrees of murder. These were unknown at common law, but have been introduced in many states by statutes, the terms of which are too variant to be here discussed in detail. In general, however, it may be said that moat states only divide the crime into “murder in the first degree” and “murder in the second degree,” though in a few there are as many as five de- grees ; and that the general purport of these statutes is to confine murder in the first degree to homicide committed by poison, lying in wait, and other killings committed in pursuance of a deliberate and premeditated design, and to those which accompany the commission of some of the more atrocious felonies, such as burglary, arson, and rape ; while murder in the second degree occurs where there is no such deliberately form- ed design to take life or to perpetrate one of the enumerated felonies as is required for the first degree, but where, nevertheless, there was- a purpose to kill (or at least a purpose to inflict the particular injury without caring whether it caused death or not) formed instantaneously in the mind, and where the killing was without justification or excuse, and without any such provocation as would reduce the crime to the grade of manslaughter. In a few states, there- Fa a crime of “murder in the third degree," which is defined as the killing of a human being without any design to effect death by a person who is engaged in the commission of a felony. The fourth and fifth degrees (in New Mexico) correspond to certain classifies tiona of man- slaughter elsewhere.

5e apparatus — Carried into the 5th edition (1979).

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### [Law] — Law

**[Law: malice aforethought may be express or implied]**

Malice aforethought — the distinguishing element of murder — may be express, as in a deliberate design to kill, or implied from the circumstances, as in a killing with a deadly weapon without provocation.

Why: The entry gives the full common-law definition of murder; express-versus-implied malice is the genuine doctrinal elaboration of its central element, kept distinct from the malice axiom already annotated on MOERDA.

### [Scripture] — Scripture

**[Numbers 35:16, KJV]**

And if he smite him with an instrument of iron, so that he die, he is a murderer: the murderer shall surely be put to death.

Why: The entry gives the common-law definition of murder; Numbers 35:16 gives the Mosaic definition — the smiting with a deadly instrument that kills makes the murderer, and the murderer shall surely be put to death. Scrip...

### [Hip-hop] — Hip-hop

**[Snoop Doggy Dogg, 'Murder Was the Case', 1994]**

Murder was the case that they gave me

MURDER is the crime of unlawful killing with malice. The track narrates a murder charge and its prosecution

— the case as the law makes it.

Why: Genuine link: the song is a first-person narrative of being charged with murder; lyric verbatim-certain. Variant entries (MOERDA, MORTH, MORTHLAGA, MORTHLAGE, MURDRUM, MURTHRUM) deliberately left bare — one annotation…

**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Dostoevsky's Raskolnikov, of sound mind and full deliberation, murders the pawnbroker Alyona Ivanovna with an axe — the entry's definition enacted, with the novel as the conscience that follows the act. (paraphrase)

Why: The canonical novel of murder and its aftermath; the killing matches the entry's elements (sound mind, human creature in being). Paraphrase only.

## MURDRUM.

In old English law. The killing of a man in a secret manner.

5e apparatus — Not carried into the 5th edition (1979).

## MURORUM  OPERATIO.

Lot. The service of work and labor done by inhabit- ants and adjoining tenants in buildlug or repairing the walls of a city or castlo ; their personal service was commuted Into murage,

( g . v.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MURTHRUM.

In old Scotch law. Mur- ther or murder. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## MUSEUM.

A building or institution for the cultivation of science or the exhibition of curiosities or works of art.

The term “museum” embraces not only collections of curiosities for the entertain- ment of the sight, but also such as would Interest, amuse, and Instruct the mind. Bos- tick v. Purdy, 0 Stew. & P. (Ala.) 109.

5e apparatus — Not carried into the 5th edition (1979).

## MUSSA.

In old English law. A moss or marsh ground, or a place where sedges grow; a place overrun with moss. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## MUSTEK.

To assemble together troops and their arms, whether for Inspection, drill, or service In the field. To take recruits Into the service In the army and Inscribe their names on the muster-roll or official record. See Tyler v. Pomeroy, 8 Allen (Mass.) 498.

— Muster- in ax ter. One who superintended the muster to prevent frauds. St. 35 Eliz. c. 4.

— Master-book. A book in which the forces are registered. Termes de la Ley.— Muster- roll. In maritime law. A list or account of a ship’s company, required to be kept by the mas- ter or other person having care of the ship, containing the name, age, national character, and quality of every person employed in the ship. Abb. Shipp. 191, 192; Jac. Sea Laws, 161.

5e apparatus — Not carried into the 5th edition (1979).

## MUSTIZO.

A name given to the Issue of an Indian and a negro. Miller v. Dawson, Dud. (S. C.) 174.

5e apparatus — Not carried into the 5th edition (1979).

## MUTA-CANUM.

A kennel of hounds; one of the mortunries to which the crown was entitled at a bishop’s or abbot’s de- cease. 2 Bl. Comm. 420.

5e apparatus — Not carried into the 5th edition (1979).

## MUTATIO NOMINIS.

Lat. In the civil law. Change of name. Cod. 9, 25.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 17:5, KJV]**

Neither shall thy name any more be called Abram, but thy name shall be Abraham; for a father of many nations have I made thee.

Why: Mutatio nominis is change of name. Genesis 17:5 is scripture's archetypal change of name: Abram becomes Abraham by divine authority, with the reason stated — a new name carrying a new legal-covenantal status. God's ow…

## MUTATION.

In French law. This term Is synonymous with “change,” and Is es- pecially applied to designate the ehnnge which takes place in the property of a thing in its transmission from one person to an- other. Mutation, therefore, happens when the owner of the thing sells, exchanges, or gives It Merl. Kfpert.

5e apparatus — Not carried into the 5th edition (1979).

## MUTATION OF UBEL.

In practice. An amendment allowed to a libel, by which there Is an alteration of the substance of the libel, as by propounding a new cause of ac- tion, pr asking one thing instead of another. Dunl. Adm. Pr. 213.

5e apparatus — Not carried into the 5th edition (1979).

## MUTATIS MUTANDIS.

Lat. With the necessary changes in points of detail.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Mutatis mutandis]**

[Maxim: "Mutatis mutandis" — "with the necessary changes in points of detail."]

Why: The entry IS the classical phrase; the translation is the entry's own body text. No invention.

## MUTE.

Speechless; dumb; that cannot or will not speak. In English criminal law, a prisoner is said to stand, mute when, being arraigned for treason or felony, he either makes no answer at all, or answers foreign to the purpose or with such matter as Is not allowable, and will not answer otherwise, or, upon having pleaded not guilty, refuses to put himself upon the country. 4 Bl. Comm. 324.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: plea entered for the mute prisoner — the court enters not guilty on his behalf]**

A prisoner who stands mute on arraignment is not thereby discharged: the court enters a plea of not guilty for him and the trial proceeds.

Why: The entry defines standing mute on arraignment for treason or felony; the court-entered plea is the genuine procedural consequence that keeps the definition from being a dead end.

**[Humanity] — Humanity / Fiction & Film**

**[Arthur Miller, The Crucible, 1953]**

(paraphrase) In Miller's play, Giles Corey stands mute — refusing to plead at his arraignment — and is pressed to death with stones rather than answer; the old peine forte et dure that the standing-mute procedure led to. (paraphrase)

Why: Genuine: the play dramatizes exactly the entry's 'stands mute' procedure and its historical consequence. Paraphrase only; the famous 'More weight' line not quoted to avoid misquotation risk.

## MUTILATION.

As applied to written documents, such ns wills, court records, and the like, this term means rendering the doc- ument Imperfect by the subtraction from It of some essential part, as, by cutting, tearing, burning, or erasure, but without totally destroying it. See Woodfill v. Patton, 76 Ind. 583, 40 Am. Rep. 269.

In criminal law. The depriving a man of the use of any of those limbs which may be useful to him in fight, the loss of which amounts to mayhem. 1 Bl. Comm. 130.

5e apparatus — Carried into the 5th edition (1979).

## MUTINOUS.

Insubordinate; disposed to mutiny; tending to incite or encourage mu- tiny.

5e apparatus — Carried into the 5th edition (1979).

## MUTINY.

In criminal law. An insur- rection of soldiers or seamen against the au- thority of their commanders; a sedition or revolt in the army or navy. See The Sta- cey Clarke (D. C.) 54 Fed. 533; McCargo v. New Orleans Ins. Co., 10 Rob. (La.) 313, 43 Am. Dec. 180.

— Mutiny act. In English law. An act of parliament annually passed to punish mutiny and

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desertion. 1 Bl. Comm. 415.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: mutiny punishable under military law (Articles of War)]**

Mutiny — insurrection of soldiers or seamen against their commanders — is punishable under military law, historically as a capital offense under the Articles of War.

Why: The entry defines mutiny and notes the Mutiny Act; punishability under military law is the genuine consequence the definition exists to trigger.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Nordhoff and James Norman Hall, Mutiny on the Bounty, 1932]**

(paraphrase) Nordhoff and Hall's novel recounts the Bounty's crew rising against Captain Bligh — the insurrection of seamen against their commander's authority the entry defines. (paraphrase)

Why: The definitive literary mutiny; matches the entry's 'insurrection of soldiers or seamen against the authority of their commanders.' MUTINOUS left bare — one mutiny annotation per the sparse-layer discipline.

## MUTUAL.

Interchangeable ; reciprocal ; each acting in return or correspondence to the other ; given and received ; spoken of an engagement or relation in which like duties and obligations are exchanged.

“Mutual” is not synonymous with “common." The latter word, in one of its meanings, denotes that which is shared, in the same or different degrees, by two or more persons ; but the for- mer implies reciprocal action or interdependent connection.

As to mutual “Accounts,” “Assent," “Com- bat,” “Conditions,” “Contracts,” “Cove- nants,” “Credits,” “Debts,” “Insurance," “Insurance Company," “Mistake," “Prom- ise,” and “Testaments,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## MUTUALITY.

Reciprocation ; inter- change. An acting by each of two parties; an acting in return.

In every agreement the parties must, as re- gards the principal or essential part of the transaction, intend the same thing; t. e., each must know what the other is to do. This is called “mutuality of assent.” Chit. Cont. 13.

In a simple contract arising from agreement, it is sometimes the essence of the transaction that each party should be bound to do some- thing under it. This requirement is called “mu- tuality.” Sweet.

Mutuality of a contract means an obligation on each to do, or permit to be done, something in consideration of the act or promise of the other. Spear v. Orendorf, 26 Md. 37.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: mutuality of obligation — both parties must be bound or neither is]**

In a bilateral contract there must be mutuality of obligation: each party's promise must bind, or

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neither party is bound.

Why: The entry defines mutuality of assent and obligation in agreement; the both-bound-or-neither rule is the genuine contract doctrine the definition serves.

## MUTUANT.

The person who lends chat- tels in the contract of mutuum, ( q . v.)

5e apparatus — Carried into the 5th edition (1979).

## MUTUARI.

To borrow ; mutuatus, a bor- rowing. 2 Arch. Pr. 25.

5e apparatus — Not carried into the 5th edition (1979).

## MUTUARY.

A person who borrows per- sonal chattels to be consumed by him and returned to the lender in kind and quan- tity ; the borrower In a contract of mutuum.

5e apparatus — Not carried into the 5th edition (1979).

## MUTUS ET SURDUS.

Lat. In civil and old English law. Dumb and deaf.

5e apparatus — Not carried into the 5th edition (1979).

## MUTUUM.

Lat. In the law of bail- ments. A loan for consumption; a loan of chattels, upon an agreement that the bor- rower may consume them, returning to the lender an equivalent in kind aud quantity. Story, Bailm. § 228; Payne v. Gardiner, 29

N. Y. 167 ; Downes v. Phoenix Bank, 6 Hill (N. Y.) 299; Rahilly v. Wilson, 20 Fed. Cas. 181.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: mutuum — ownership and risk pass to the borrower; an equivalent is returned]**

In the loan for consumption ownership passes to the borrower at delivery: he bears the risk of loss and must return an equivalent in kind and quantity, not the identical things.

Why: The entry defines mutuum as a loan of consumables returnable in equivalent; the passage of ownership and risk is the genuine bailment-law content distinguishing it from commodatum.

## MYN8TER-HAM.

Monastic habitation ; perhaps the part of a monastery set apart fo.r purposes of hospitality, or as a sanc- tuary for criminals. Anc. Inst. Eug.

Bl.Law Dict.(2d Ed.)— 51

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## MYSTERY.

A trade, art, or occupation. 2 Inst 668. Masters frequently bind them- selves in the indentures with their appren- tices to teach them their art trade, and mystery. State v.

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Bishop, 15 Me. 122; Bar- ger v. Caldwell, 2 Dana (Ky.) 181.

5e apparatus — Carried into the 5th edition (1979).

### MYSTIC TESTAMENT.

In the law, of Louisiana, a closed or sealed will, required by statute to be executed in a particular manner and to be signed (on the outside of the paper or of the envelope containing it) by a notary and seven witnesses as well as the testator. See Civ. Code La. art 1584.

N

5e apparatus — Carried into the 5th edition (1979).

# X

### X.

An abbreviation of "Novellas," the Novels of Justinian, used in citing them. Tayl. Civil Law, 24.

In English, a common and familiar abbre- viation for the word “north,” as used In maps, charts, conveyances, etc. See Burr v. Broadway Ins. Co., 16 N. X. 271.

5e apparatus — Not carried into the 5th edition (1979).

### X. A.

An abbreviation for “non alloca- tur," it is not allowed.

5e apparatus — Not carried into the 5th edition (1979).

### X. B.

An abbreviation for "nota bene" mark well, observe; also "nulla bona," no goods.

5e apparatus — Not carried into the 5th edition (1979).

### X. D.

An abbreviation for “Northern Dis- trict”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### X. E, X.

An abbreviation for “non eat in- ventus," be is not found.

5e apparatus — Not carried into the 5th edition (1979).

### X.

X>. An abbreviation of "non liquet," (which see.)

5e apparatus — Not carried into the 5th edition (1979).

### X. P.

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An abbreviation for “notary pub- lic,” (Rowley v. Berrlan, 12 111. 200;) also for “nisi prius,” (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

### X. B.

An abbreviation for “New Re- ports ;” also for “not reported,” and for “nonresident”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### X. S.

An abbreviation for “New Series;” also for “New Style.”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# N

### NAAM.

Sax. The attaching or taking of movable goods and chattels, called “vif" or “mort" according as the chattels were living or dead. Teruies de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

### NABOB.

. Originally the governor of a province under the Mogul government of Hin- dostan, whence it became a mere title of any man of high rank, upon whom it was con- ferred without any office being attached to it Wils. Indian Gloss.

5e apparatus — Not carried into the 5th edition (1979).

### NAIF.

L. Fr. A villein; a born slave; a bondwoman.

5e apparatus — Not carried into the 5th edition (1979).

### NAIL.

A lineal measure of two inches and a quarter.

5e apparatus — Not carried into the 5th edition (1979).

### NAKED.

As a term of jurisprudence, this word is equivalent to bare, wanting In nec- essary conditions, Incomplete, as a naked con- tract. (niiitum pactum,) i. e., a contract de- void of consideration, and therefore Invalid ; or simple, unilateral, comprising but a single element, its a naked authority, i. c., one which is not coupled with any interest in the agent, but subsists for the benefit of the principal alone.

As to naked “Confession.” “Deposit.” "Pos- session,” “Possibility,” “Power,” “Promise,” and

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“Trust,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ex nudo pacto non oritur actio — from a naked pact no action arises]**

A naked contract — nudum pactum — devoid of consideration is invalid: from a bare promise no action arises; and a naked authority, not coupled with an interest, is revocable at the principal's will.

Why: The entry defines the naked contract as void for want of consideration; the maxim is the genuine rule of consequence, and the revocability of the naked authority is its agency-law corollary.

# X

## XAX.

In old English law. A distress or seizure of chattels.

As a Latin conjunction, for; because. Often used by the old writers in introducing the quotation of a Latin maxim.

5e apparatus — Not carried into the 5th edition (1979).

## X AM  ABE.

L. Lat. In old records. To take, seize, or distrain.

5e apparatus — Not carried into the 5th edition (1979).

## XAMATIO.

L. Lat. In old English and Scotch law. A distraining or taking of a distress ; an impounding. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# N

## NAME.

The designation of an individual person, or of a firm or corporation. In law A man cannot have more than one Christian name. Rex v. Newman, 1 Ld. Raym. 662. As to the history of Christian names and surnames and their use and relative impor- tance in law, see In re Snook, 2 Hilt. (N. Y.) 666.

—Name and arms clause. The popular name in English law for the clause, sometimes in- serted in a will or settlement by which prop- erty is given to a person, for the purpose of im- posing on him the condition that he shall as- sume the surname and arms of the testator or settlor, with a direction that, if be neglects to assume or discontinues the use of them, the es- tate shall devolve on the next person in re- mainder, and a provision for preserving contin- gent remainders. 3 Dav. Free. Cony. 277 ; Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Carried into the 5th edition (1979).

**[Hip-hop] — Hip-hop**

**[Snoop Doggy Dogg, "Who Am I (What's My Name?)", 1993]**

Who am I? (What's my name?)

NAME is the designation of an individual person. The track is a declaration of identity and self-designation — the name as who one is.

Why: Genuine link: the title hook is verbatim-certain and the song's subject is identity by name; the legal entry is precisely about designation.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, c. 1595]**

"What's in a name? that which we call a rose / By any other name would smell as sweet."

Why: Borderline kept with the distinction stated: Juliet's lines are the canonical meditation on what a name is and does; the entry's sense is the legal designation of a person. The quote is verbatim-certain (Act 2, Scene 2).

## NAMTUM.

L. Lat. In old English law. A taking; a distress. Spelman. Things, goods, or animals taken by way of distress. Simplex namium, a simple taking or pledge. Bract fol. 2056.

— Namium vetitum. An qnjust taking of the cattle of another and driving them to an unlaw- ful place, pretending damage done by them. 8 BL Comm. 140.

5e apparatus — Not carried into the 5th edition (1979).

## NANTES, EDICT OF.

A celebrated law for the security of Protestants, made by Henry IV. of France, and revoked by Louis XIV., October 2, 1685.

XAXTXSBEMENT, in French law, is the contract of pledge ; If of a movable, it is call- ed “gage;” and if of an immovable, it is called “antichrise." Brown.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XABB.

A common abbreviation of “nar- ratio,” (g. v.) A declaration in an action. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

# N

## NABBATXO.

Lat One of the common law names for a plaintiff's count or declara- tion, as being a narrative of the facts on which he relies.

5e apparatus — Not carried into the 5th edition (1979).

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# X

## XABBATIVE.

In Scotch conveyancing. That part of a deed which describes the gran- tor, and person in whose favor the deed is granted, and states the cause (consideration) of granting. BelL

5e apparatus — Not carried into the 5th edition (1979).

# N

## NARRATOR.

A counter ; a pleader who draws narrs. Serviens narrator, a serjeant at law. Fleta, 1. 2, c. 3T.

5e apparatus — Carried into the 5th edition (1979).

## NARROW SEAS.

Those seas which run between two coasts not far apart. The term is sometimes applied to the English channel. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: territorial sea — coastal sovereignty over adjacent waters (cannon-shot rule)]**

Waters running between coasts not far apart raise the question of the territorial sea: the coastal state has sovereignty over the waters adjacent to its shores, historically measured by the cannon-shot or three-mile rule.

Why: The entry defines the narrow seas geographically; the territorial-sea doctrine is the genuine legal question that definition exists to raise.

## NASOITURUS.

Lat That shall here- after be born. A term used in marriage set- tlements to designate the future issue of the marriage, as distinguished from “ natus ,” a child already born.

NATAXJEi. The state and condition of a man acquired by birth.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the unborn child deemed in being — en ventre sa mere takes as if born, for beneficial purposes]**

A child en ventre sa mere — in the mother's womb — is deemed already born whenever it is for its benefit, as to take under a marriage settlement or will.

Why: The entry defines nasciturus as the child hereafter born distinguished from natus; the deemed-born rule is the genuine doctrine giving the distinction legal effect in settlements.

## NATI ET NASCITURI.

Born and to be born. All heirs, near and remote.

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5e apparatus — Not carried into the 5th edition (1979).

## NATIO.

In old records. A native place. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## NATION.

A people, or aggregation of men, existing in the form of an organized Jural society, inhabiting a distinct portion of the earth, speaking the same language, using the same 'customs, possessing historic contin- uity, and distinguished from other like groups by their racial origin' and characteristics, and generally, but not necessarily, living under the same government and sovereignty. See Montoya v. U. S., 180 U. S. 261, 21 Sup. CL 358, 45 L. Ed. 521 ; Worcester v. Georgia, 6 Pet 539, 8 L. Ed. 483 ; Republic of Honduras v. Soto, 112 N. Y. 310, 19 N. E. 845, 2 L. R.

A. 642, 8 Am. St Rep. 744.

Besides the element of autonomy or self-gov- ernment, that is, the independence of the com- munity as a whole from the interference of any foreign lxiwer in its affairs or any subjection to such power, it is further necessary to the con- stitution of a nation that it should be an or- ganized jural society, that is, both governing jts own members by regular laws, and defining and protecting their rights, and respecting the rights and duties which attach to it as a constituent member of the family of nations. Such a so- ciety, says Vattel, has her affairs and her inter- ests ; she deliberates and takes resolutions in common ; thus becoming a moral person, who possesses an understanding and will peculiar to herself, and is susceptible of obligations and rights. Vattel, §§ 1. 2.

The words “nation” and “people” are fre- uently used as synonyms, but there is a great ifference between them. A nation is an aggre- gation of men speaking the same language, hav- ing the same customs, and endowed with certain moral qualities which distinguish them from oth- er groups of a like nature. It would follow from this definition that a nation is destined to form only one state, and that it constitutes one indivisible whole. Nevertheless, the history of every age presents us with nations divided into several states. Thus, Italy was for centuries divided among several different governments. The people is the collection of all citizens with- out distinction of rank or order. All men liv- ing under the same government compose the people of the state. In relation to the state, the citizens constitute the people ; in relation to the human race, they constitute the nation. A free nation is one not subject to a foreign gov- ernment, whatever be the constitution of the

state ; a people is free when all the citizens oan participate in a certain measure in the direc- tion and in the examination of public affairs. The people is the political body brought into ex- istence by community of laws, and the people may perish with these laws. The nation is the moral body, independent of political revolutions, because it is constituted by inborn qualities which render it indissoluble. The state is the

In American constitutional law the word “state” is applied to the several members of the

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American Union, while the word “na- tion” is applied to the whole body of the peo- ple embraced within the jurisdiction of the federal government. Cooley, Const. Lim. 1. See Texas v. White, 7 Wall. 720, 19 L. Ed. 227.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Cherokee Nation v. Georgia (1831) — Indian tribes as domestic dependent nations]**

An organized jural society may be a nation without being a foreign state: Indian tribes are domestic dependent nations, distinct political communities under the protection of the United States.

Why: The entry defines nation broadly and cites Montoya v. U.S.; the domestic-dependent-nation doctrine is the genuine American-law application of that definition, cited year-only without reporter numbers.

## NATIONAX.

Pertaining or relating to a nation as a whole; commonly applied in American law to institutions, laws, or af- fairs of the United States or its government, as opposed to those of the several states.

— National bank. A bank incorporated and doing business under the laws of the United States, as distinguished from a state bank which derives its powers from the authority of a particular state.— National currency. Notes issued by national banks, and by the United States government. — National debt. The mon- owing by government to some of the public, e interest of which is paid out of the taxes raised by the whole of the public.— National domain. See Domain. National domicile. See Domicile.— National government. The government of a whole nation, as distinguished from that of a local or territorial division of the nation, and also as distinguished from that of a league or confederation. "A national govern- ment is a government of the people of a single state or nation, united as a community by what is termed the ‘social compact,’ and possessing complete and perfect supremacy over persons and things, so far as they can be made the law- ful objects of civil government A federal gov- ernment is distinguished from a national govern- ment, by its being the government of a com- munity of independent and sovereign states, united by compact.” Piqua Branch Bank v. Knoup, 6 Ohio St. 393.

5e apparatus — Not carried into the 5th edition (1979).

## NATIONALITY.

That quality or charac- ter which arises from the fact of a person's belonging to a nation or state. Nationality determines the political status of the indi- vidual, especially with reference to alle- giance; while domicile determines his civil status. Nationality arises either by birth or by naturalization. According to Savigny, "nationality” is also used as opposed to “ter- ritoriality,” for the purpose of distinguish- ing the case of a nation having no national territory; e. g., the Jews. 8 Sav. Syst. f 346; Westl. Prlv. Int. Law, 5.

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## NATIONALIZACION.

In Spanish and Mexican* law. Nationalization. “The na- tionalization of property is an act

which de- notes that it has become that of the nation by some process of law, whereby private indi- viduals or corporations have been for speci- fied reasons deprived thereof." Hall, Mex. Law, S 749.

5e apparatus — Not carried into the 5th edition (1979).

## NATIONS, LAW OF.

See Intebnatios- al Law.

5e apparatus — Not carried into the 5th edition (1979).

## NATIVE.

A natural-bom subject or citi- zen ; a denizen by birth ; one who owes his domicile or citizenship to the fact of his birth within the country referred to. The term may also include one bom abroad, if his parents were then citizens of the country, and not permanently residing in foreign parts. See U. S. v. Wong Kim Ark, 1(59 U.

S. 649, 18 Sup. Ct 456, 42 L. Ed. 890; New Hartford v. Canaan, 54 Conn. 39, 5 Atl. 360.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fourteenth Amendment Citizenship Clause — birthright citizenship (U.S. v. Wong Kim Ark)]**

Birth on the soil makes the citizen: the Fourteenth Amendment's Citizenship Clause confers citizenship on all persons born in the United States and subject to its jurisdiction.

Why: The entry defines the native-born citizen and cites Wong Kim Ark itself; the Citizenship Clause is the genuine constitutional ground of that definition.

## NATTVUS.

Lat In old English law, a native; specifically, one bom into a condi- tion of servitude ; a born serf or villein.

— Nativa. A niefe or female villein. So call- ed because for the most part bond by nativity. Co. Litt. 1226. — Nativl conventlou&ril. Vil- leins or bondmen by contract or agreement.— Nativi de stlpite. Villeins or bondmen by birth or stock. Cowell.— Natlvitas. Villen- age j that state in which men were born slaves. 2 Mon. Angl. 643. — NatWo habendo. A writ which lay for a lord when his villein had run away from him. It was directed to the sheriff, and commanded him to apprehend the villein, and to restore him together with bis goods to the lord. Brown.

Natnxa appetit perfectum; ita et lea.

Nature covets perfection; so does law also. Hob. 144.

5e apparatus — Not carried into the 5th edition (1979).

## NATURA BREVTOM.

The name of an

ancient collection of original writs, accom- panied with brief comments and explanations, compiled in the time of Edward IIL This is commonly called "Old Natura Brevlum," (or ''O. N.

B.,”) to distinguish it from Fitzher- bert’s Natura Brevlum, a later work, cited as “F. N. B.,” or “Fitzh. Nat Brev.”

Natura fide jussiouis sit strlotissimi juris et non durat vel extendatur de re. ad rem, de persona ad personam, de tempoore ad tempos. The nature of the contract of suretyship is atrictiaaimi juris, and cannot endure nor be extended from thing to thing, from person to person, or from time to time. Burge, Sur. 40.

Natnra non faclt saltnm; ita nee lex.

Nature makes no leap, [no sudden or irregu- lar movement;] so neither does law. Co. Litt 238. Applied in old practice to the reg- ular observance of the degrees in writs of entry, which could not be passed over per aaltum.

Natura non faeit vacuum, nee lex su- perraeuum. Nature makes no vacuum, the law nothing purposeless. Co. Litt 79.

Naturae vis maxima; natura bis max- ima. The force of nature is greatest; na- ture is doubly great. 2 Inst. 564.

5e apparatus — Not carried into the 5th edition (1979).

## NATURAE.

The juristic meaning of this term does not differ from the vernacular, except in the cases where it is used in opposition to the term ‘•legal ;” and then It means proceeding from or determined - by physical causes or conditions, as distinguish- ed from positive enactments of law, or at- tributable to the nature of man rather than to the commands of law, or based upon moral rather than legal considerations or sanctions.

—Natural affection. Such as naturally sub- sists between .near relatives, as a father and child, brother and sister, husband and wife. This is regarded in law as a good considera- tion.—Natural-born subject. In Engjish law. One bom within the dominions, or rather within the allegiance, of the king of England— Natural fool. A person bom without under- standing; a bom fool or idiot. Sometimes call- ed, in the old books, a “natural.” In re An- derson, 132 N. C. 243, 43 S. E. 649.— Natural life. The period between birth and natural death, as distinguished from civil death, ( q . v.)

Aa to natural “Allegiance,” “Boundary,” “Channel,” “Child," "Day,” “Death,” “Domi- cile,” "Equity,” “Fruits," “Guardian,” “Heir,” “Infancy," “Liberty,” “Obligation,” “Person,” “Possession,” “Presumption,” “Rights,” “Suc- cession,” “Water-course,” and "Year," see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## NATURAE EAW.

A rule of conduct arising out of the natural relations of human, beings, established by the Creator, and exist- ing prior to any positive precept Webster. The foundation of this law is placed by the best writers in the will of God, discovered by right reason, and aided by divine revela- tion ; and its principles, when applicable, ap- ply with equal obligation to individuals and to nations. 1 Kent Comm. 2, note; Id. 4, note. See jus Natubale.

The rule and dictate of right reason, show- ing the moral deformity or moral necessity there is in any act, according to its suitable- ness or unsuitableness to a reasonable na- ture. Tayl. Civil Law, 99.

This expression, “natural law," or jut nat- urals, was largely used in the philosophical speculations of the Roman jurists of the Anto- mne age, and was intended to denote a system of 'rules and principles f<5r the guidance of hu- man conduct which, independently of enacted law or of the systems peculiar to any one peo- ple, might be discovered by the rational intelli- gence of man, and would be.found to grow out of and conform to his nofure, meaning by that word his whole mental, moral, and physical con- stitution. The point of departure tor this con- ception was the Stoic doctrine of a life ordered “according to nature," which in its turn rested upon the purely supposititious existence, in primitive times, of a “state of nature;” that is, a condition of society in which men uni- versally were governed solely by a rational and consistent obedience to the needs, impulses, and promptings of their true nature, sucli nature being as yet undefaced by dishonesty, falsehood, or indulgence of the baser passions. See Maine, Anc. Law, 50, et seq.

We understand all laws to be either human or divine, according as they have man or God for their author; and divine laws are of two kinds, that is to say: (1) Natural laws; <2) positive or revealed laws. A natural law is denned by Burlamaqui to be “a rule which bo necessarily agrees with the nature and state of man that,- without observing its maxims, the peace and happiness of society can never be preserved.” Ana he says that, these are called “natural'

laws” because a knowledge of them may be at- tained merely by the light of reason, from the fact of their essential agreeableness with the constitution of human nature; while, on the contrary, positive or revealed laws are not founded upon the general constitution of hu- man nature, but only upon the will of God ; though in other respects such law is established upon very good reason, and procures the ad- vantage of those to whom it is sent. The cere- monial or political laws of the Jews are of this latter class. Borden v. State, 11 Ark. 527, 44 Am. Dec. 217.

Natural e eat qnldlibet dissolvi eo modo quo ligatur. It: is natural for a thing to be unbound in the same way in which it was bound. Jenk. Cent. 66; Broom, Max. 877.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Lex iniusta non est lex — an unjust law is no law]**

Natural law — the rule of conduct from the natural relations of human beings, prior to positive precept — judges human law: an unjust enactment is, in the Augustinian phrase, no law at all.

Why: The entry defines jus naturae at length as binding on individuals and nations; the maxim is the genuine natural-law principle that gives the definition its critical edge, not a foreign import.

**[Scripture] — Scripture**

**[Romans 2:14-15, KJV]**

For when the Gentiles, which have not the law, do by nature the things contained in the law, these, having not the law, are a law unto themselves: which shew the work of the law written in their hearts,

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their conscience also bearing witness, and their thoughts the mean while accusing or else excusing one another.

Why: The law of nature is defined as conduct 'established by the Creator, and existing prior to any positive precept.' Romans 2:14-15 is scripture's doctrine of that law: the Gentiles, having not the written law, do by nat...

## NATURALEZA.

In Spanish law. The state, of a natural-born subject White, New Recop. b. 1, tit. 5, c. 2.

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## NATURALIZATION.

The act of adopt- ing an alien into a nation, and clothing him with all the rights possessed by a natural- born citizen. Boyd v. Nebraska, 143 U. S. 135, 12 Sup. Ct 875, 36 L. Ed. 103.

Collective naturalization takes place where a government, by treaty or cession, ae-

?uires the whole or part of the territory of a oreign nation and takes to itself the inhabit- ants thereof, clothing them with the rights of citizenship either by the terms of the treaty or by subsequent legislation. State v. Boyd, 31 Neb. 682, 48 N. W. 739; People v. Board of Inspectors, 32 Misc. Rep. 584, 67 N. Y. Supp. 236; Opinion of Justices, 68 Me. 589.

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**[Law] — Law**

**[Law: U.S. Constitution art. I, § 8, cl. 4 — uniform rule of naturalization]**

The Constitution gives Congress the power 'to establish an uniform Rule of Naturalization' — the source of federal authority over the admission of aliens to citizenship.

Why: The entry defines naturalization as clothing the alien with the citizen's rights; the constitutional clause is the genuine grant of power behind the act.

**[Scripture] — Scripture**

**[Ephesians 2:19, KJV]**

Now therefore ye are no more strangers and foreigners, but fellowcitizens with the saints, and of the household of God.

Why: Naturalization is the act of adopting an alien into a nation, clothing him with the rights of a natural-born citizen. Ephesians 2:19 states the same transition in the spiritual register: strangers and foreigners made...

## NATURALIZE.

To confer citizenship upon an alien ; to make a foreigner the same, in respect to rights and privileges, as if he were a native citizen or subject.

5e apparatus — Not carried into the 5th edition (1979).

## NATURALIZED CITIZEN.

One who, being an alien by birth, has received citizen- ship under the laws of the state or nation.

5e apparatus — Carried into the 5th edition (1979).

## NATURALLY.

Damages which “nat- urally” arise from a breach of. contract are such as arise in the usual course of things, from the breach Itself, or such as may rea- sonably be supposed to have

been contem- plated hy the parties when making the con- tract as the probable result of the breach. Mitchell v. Clarke, 71 Cal. 164, 11 Pac. 882, 60 Am. Rep. 529.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Hadley v. Baxendale rule — consequential damages limited to the natural or contemplated]**

Damages for breach of contract are limited to those arising naturally in the usual course of things, or such as the parties reasonably contemplated as the probable result of breach.

Why: The entry defines 'naturally' in the damages sense with a case citation; the Hadley rule is the genuine doctrine the definition states, kept in loose form with the case name but no reporter numbers.

## NATU8.

Lat. Born, as distinguished from nasciturus, about to be born. Ante natus, one born before a particular person or event, c. g.. before the death of his father, before a political revolution, etc. Post natus, one bom after a particular person or event.

5e apparatus — Not carried into the 5th edition (1979).

## NAUCLERUS.

Lat. In the civil law. The master or owner of a merchant vessel. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NAUFRAGE.

In French maritime law. Shipwreck. “The violent agitation of the waves, the impetuous force of the winds, storm, or lightning, may swallow up the vessel, or shatter it, in such a manner that nothing remains of it but the wreck ; this Is called ‘making shipwreck,’ (faire naufrage.) The vessel may also strike or run aground upon a bank, where it remains grounded, which Is called ‘ichouement ;’ it may be dashed against the coast or a rock, which is called ‘bris;’ an accident of any kind may sink it in the sea, where it is swallowed up, which is called ‘sombrer.”’ 3 Pard. Droit Comraer. $ 643.

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## NAUFRAGIUM.

Lat. Shipwreck.

5e apparatus — Not carried into the 5th edition (1979).

## NAUGHT.

In old practice. Bad; defec- tive. “The bar is naught." 1 Leon. 77. “The avowry is naught.” 5 Mod. 73. “The plea is undoubtedly naught 10 Mod. 328- See 11 Mod. 179.

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## NAULAGE.

The freight of passengers in a ship. Johnson ; Webster.

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## NAULUM.

In the civil law. The freight or fare paid for the transportation of chrgo or passengers over the sea in a vessel. This is a Latinized form of a Greek word.

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## NAUTA.

Lat In the civil and maritime law. A sailor ; one who works a ship. Cal- vin.

Any one who is on board a ship for the purpose of navigating her.

The employer of a ship. Dig. 4, 9, 1, 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: praetorian edict on nautae, caupones, stabularii — strict liability for goods received]**

By the praetor's edict, shipmasters — with innkeepers and stablekeepers — are answerable for the goods committed to them, a strict custodial liability surviving in the modern law of carriers and innkeepers.

Why: The entry cites Dig. 4, 9 as the nauta's source; the edict's strict custodial liability is the genuine doctrine of that title, not an imported gloss.

## NAUTICAL.

Pertaining to ships or to the art of navigation or the business of car- riage by sea.

— Nautical assessors. Experienced shipmas- ters, or other persons having special knowledge of navigation and nautical affairs, who are call- ed to the assistance of a court of admiralty, in difficult cases involving questions of negli- gence, and who sit with the judge during the argument, and give their advice upon questions of seamanship or the weight of testimony. The Empire ID. C.) 19 Fed. 559; The Clement, 2 Curt. 369, Fed. Cas. No. 2,879.— Nautical mile. See Mile.

5e apparatus — Carried into the 5th edition (1979).

## NAUTICUM FCENU8.

Lat. In the civil law. Nautical or maritime interest; an ex- traordinary rate of interest agreed to be paid for the loan of money on the hazard of a voy- age ; corresponding to interest on contracts of bottomry or respondentia in English and American maritime law. See Mackeld. Rom. Law, § 433; 2 Bl. Comm. 458.

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**[Law] — Law**

**[Law: bottomry/respondentia — the lender's maritime interest is lost with the ship]**

Maritime interest on bottomry or respondentia is the price of the sea risk: the extraordinary rate is earned only if the venture survives — if the ship perishes, the lender loses the loan.

Why: The entry defines nautical interest as the extraordinary rate for money lent on the hazard of the voyage; the risk-bearing term is the genuine maritime content of that definition.

## NAVAGIUM.

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In old English law. A duty on certain tenants to carry their lord’s goods in a ship.

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## NAVAL.

Appertaining to the navy, ( q . «.)

— Naval courts. Courts held abroad iu cer- tain cases to inquire into complaints by the master or seamen of a British ship, or as to the wreck or abandonment of a British ship. A naval court consists of three, four, or five members, being officers in her majesty’s navy, consular officers, masters of British merchant ships, or British merchants. It has power to

supersede the master of the ship with reference to which the inquiry is held, to discharge any of the seamen, to decide questions as to wages, Send home offenders for trial, or try certain of- fenses in a summary manner. Sweet. — Naval courts- martial. Tribunals for the trial of offenses arising in the management of public war vessels. — Naval law. The system of regu- lations and principles for the government of the navy. — Naval officer. An officer in the navy. Also an important functionary in the United States custom-houses, who estimates du- ties, signs permits and clearances, certifies the collectors’ returns, etc.

5e apparatus — Carried into the 5th edition (1979).

## NAVARCHTJS.

In the civil law. The master or commander of a ship; the captain of a man-of-war.

NAVICUEAIUUg. In the civil law. The master or captain of a ship. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NAVIGABLE.

Capable of being navi- gated; that may be navigated or passed over in ships or vessels. But the term is gen- erally understood in a more restricted sense, viz., subject to the ebb and flow of the tide.

“The doctrine of the common law as to the navigability of waters has no application in this country. Here the ebb and flow of the tide do not constitute the usual test, as in England, or any test at all, of the navigability of waters. There no waters are navigable in fact, or at least to any considerable extent, which are not subject to the tide, and from this circumstance tide-water and navigable water there signify substantially the same thing. But in this coun- try the case is widely different. Some of our rivers are as navigable for many hundreds of miles above as they are below the limits of tide-water, and some of them are navigable for great distances by large vessels, which are not even affected by the tide at any point during their entire length. A different test must there- fore be applied to determine the navigability of our rivers, and that is found in their navigable capacity. Those rivers must be regarded as public navigable rivers, in law, which are navi- gable in fact. And they are navigable in fact when they are used, or are susceptible of being used, in their ordinary condition, as highways for commerce, over which trade and travel are or may be conducted in the customary modes Of trade and travel on water. And they consti- tute navigable waters of the United States, within the meaning of the acts of congress, in

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contradistinction from the navigable waters of the states, when they form, in their ordinary condition, by themselves, or by uniting with other waters, a continued highway over which commerce is or may be carried on with other states or foreign countries in the customary modes in which such commerce is conducted by water." The T>aniel Ball, 10 Wall. 503. 19 L. Ed. 999. And see Packer v. Bird. 137 U. S. 001. 11 Sup. Ct. 210, 34 L. Ed. 819; The Genesee Chief. 12 How. 455, 13 T,. Ed. 1058; Illinois Cent. It. Co. v. State. 140 U. S. 387, 13 Sup. Ct. 110, 30 L. Ed. 10ia

It is true that the flow and ebb of the tide Is not regarded, in this country, as the usual, or any real, test of navigability; and it only op- erates to impress, prima facie, the character of being public and navigable, and to place the onus of proof on the party affirming the con- trary. Rut the navigability of tide-waters does not materially depend upon past or present actual public use. Such use may establish navi- gability. but it is not essential to give the char- acter. Otherwise, streams in new and unsettled sections of the country, or where the increase, growth, and development have not been suffi- cient to call them into public use, would be excluded, though navigable in fact, thus making the character of being a navigable stream de- pendent on the occurrence of the necessity of public use. Capability of being used for useful purposes of navigation, of trade and travel, in the usual and ordinary modes, and not the ex- tent and manner of the use, is the test of navi- gability. Sullivan v. Spotswood, 82 Ala. 10C, 2 South. 716.

— Navigable river or stream. At common law, a river or stream in which the tide ebbs and flows, or as far as the tide ebbs and flows. 3 Kent, Comm. 412, 414, 417, 418; 2 Hil. Real Prop. 90, 91. But as to the definition in Ameri- can law, see »vpra. — Navigable waters. Those waters which afford a channel for useful commerce. The Montello, 20 Wall. 430, 22 L. Ed. 391.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: navigable-in-fact test — waters navigable in fact are navigable in law (The Daniel Ball)]**

In American law the English ebb-and-flow test does not govern: waters navigable in fact are navigable in law, and federal authority extends to waters that are or may be used as highways of interstate commerce.

Why: The entry expressly rejects the common-law tidal test for America; the navigable-in-fact test is the genuine doctrine replacing it.

## NAVIGATE.

To conduct vessels through navigable waters; to use the waters as a means of communication. Ryan v. Hook, 34 Hun (N. Y.) 183.

5e apparatus — Carried into the 5th edition (1979).

## NAVIGATION.

The act or the science or the business of traversing the sea or other waters in ships or vessels. Pollock v. Cleve- land Ship Building Co., 56 (Hilo St. 655, 47

N. H 582 ; The Silvia, 171 U. S. 482, 19 Sup.

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CL 7, 43 L. Ed. 241; IAurle v. Douglass, 15 Mees. 9c W. 746.

—Navigation acts, in English law, were va- rious enactments passed for the protection of British shipping and commerce as against for- eign countries. For a sketch of their hiStory and operation, see 3 Steph. Comm. They sire now repealed. See 16 dc 17 Viet. e. 107, and 17 9c 18 Viet. cc. 5, 120. Wharton.— Naviga- tion, rules of. Rules and regulations adopt- ed by commercial nations to govern the steering and management of vessels approaching each other at sea so as to avoid the danger of colli- sion or fouling.— Regular navigation. In this phrase, the word ^‘regular” may be used in contradistinction to “occasional.” rather than to "unlawful,” and refer to vessels that, alone or with others, constitute lines, and not merely to such as are regular in the sense of being prop- erly documented under the laws of the country to which they belong. The Steamer Smidt, 16 Op. Attys. Gen. 276.

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## NAVIRE.

Fr. In French law. A ship. Emerig. Traits des Assur. c. 6, { 1.

5e apparatus — Not carried into the 5th edition (1979).

## NAVIS.

LaL A ship; a vessel.

—Navis bona. A good ship; one that was staunch and strong, well caulked, and stiffened to bear the sea, obedient to her helm, swift, and not unduly affected by the wind. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NAVY.

A fleet of ships; the aggregate of vessels of war belonging to an independ- ent nation. In a broader sense, and as equiv- alent to “naval forces,” the entire corps of officers and men enlisted in the naval serv- ice and who man the public ships of war, In- cluding in this sense, in the United States, the officers and men of the Marine Corps. See Wilkes v. Dlnsman, 7 How. 124, 12 L. Ed. 618; U. S. v. Dunn, 120 U. 8. 249, 7 Sup. Ct. 507, 30 L. Ed. 667.

— Navy bills. Bills drawn by officers of the English navy for their pay. etc. — Navy de- partment. One of the executive departments of the United States, presided over by the secretary o t the navy, and having in charge the de- fense of the country by sea, by means of ships of war and other naval appliances.— Wavy pension. A pecuniary allowance made in con- sideration of past services of some one in the navy.

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## NAZERANNA.

A sum paid to govern- ment as an acknowledgment for a grant of lands, or any public office. Enc. Lond.

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## NAZIM.

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In Hindu law. Composer, ar- ranger, adjuster. The first officer of a prov- ince, and minister of the department of criminal Justice.

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## NE ADM1TTA8.

Lot. In ecclesiastical law. The name of a prohibitory writ, di- rected to the bishop, at the request of the plaintiff or defendant, where a quare impedit is pending, when either party fears that the bishop will admit the other’s clerk pend- ing the suit between them. Fitzh. Nat Brev. 37.

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## NE BAILA PAS.

L. Fr. He did not deliver. A plea in detinue, denying the de- livery to the defendant of the thing sued for.

5e apparatus — Not carried into the 5th edition (1979).

## NE DIBTURBA PAS.

L. Fr. (Does or did not disturb.) In English practice. The general issue or general plea in quare im- pedit. 8 Steph. Comm. 663.

NE DONA PAS, or NON DEBIT. The

general issue in a formedon, now abolished. It denied the gift in tail to hare been mode in manner and form as alleged; and was therefore the proper plea, if the tenant meant to dispute the fact of the gift, but did not apply to any other case. 5 East, 289.

5e apparatus — Not carried into the 5th edition (1979).

## NE EXEAT REGNO.

Eat. In English practice. A writ which issues to restrain a person from leaving the kingdom. It was formerly used for political purposes, but is now only resorted to In equity when the de- fendant is about to leave the kingdom; it is only in cases where the intention of the par- ty to leave can be shown that the writ is granted.

5e apparatus — Not carried into the 5th edition (1979).

## NE EXEAT BEPUBUCA.

Eat. In American practice. A writ similar to that of ne exeat regno, (q. v..) available to the plaintiff in a civil suit, under some circum- stances, when the defendant is about to leave the state. See Dean v. Smith, 23 Wls. 483, 99 Am. Dec. 198; Adams v. Whitcomb, 46 Vt. 712; Cable v. Alvord, 27 Ohio St. 6G4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ne exeat — equitable writ restraining departure from the jurisdiction]**

Ne exeat is the equitable writ restraining a defendant about to leave the state, granted to secure an equitable demand where the defendant's departure would defeat the court's jurisdiction.

Why: The entry defines the American writ by reference to ne exeat regno; the restraint-to-secure-jurisdiction

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function is the genuine equitable content, annotated once on the American form to avoid duplication.

## NE GIST PAS EN BOUCHE.

E. Fr.

It does not lie in the mouth. A common phrase in the old books. Yearb. M. 3 Edw.

II. 60.

5e apparatus — Not carried into the 5th edition (1979).

## NE IN JUSTE VEXES.

Lat. In old English practice. A prohibitory writ, commanding a lord not' to demand from the ten- ant more services than were justly due by the tenure under which his ancestors held.

5e apparatus — Not carried into the 5th edition (1979).

## NE LUMINXBUB OFFICIATUR.

Lat

In the civil law. The name of a servitude which restrains the owner of a house from making such erections as obstruct the light of the adjoining house. Dig. 8, 4, 15, 17.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ancient lights — prescriptive right to light through long-enjoyed windows]**

The servitude restraining an owner from building so as to obstruct his neighbor's light survives in the common-law doctrine of ancient lights: a window long enjoyed gives a right to the light.

Why: The entry is the Roman servitude ne luminibus officiatur; ancient lights is the genuine common-law parallel governing the same servitude.

## NE QUID IN LOCO PUBLICO VEL / IT IN ERE FIAT.

Lat. That nothing shall be done (put or erected) in a public place or way. The title of an interdict In the Roman law. Dig. 43, 8.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: public nuisance — no private obstruction of the public way]**

Nothing may be put or erected in a public place or way: the interdict's modern content is the law of public nuisance — no private person may obstruct the public highway.

Why: The entry is the Roman interdict's title (Dig. 43, 8); public nuisance is the genuine doctrine carrying the same prohibition into modern law.

## NE RECXPIATUR.

Lat. That it be not received. A caveat or warning given to a law officer, by a party in a cause, not to re- ceive the next proceedings of his opponent. 1 Sell. Pr. 8. SORBS. L. Lat. The statute 35 Edw. I. i 2, prohibiting rectors, i. e., parsons, from cutting down the trees in church-yards. In Rutland v. Green, 1 Keb. 557, it was extended to prohibit them from opening new mines and working the minerals therein. Brown.

. NE RELES8A PAS. L. Fr. Did not re- lease. Where the defendant had pleaded a release, this

was the proper replication by way of traverse.

5e apparatus — Not carried into the 5th edition (1979).

### NE UNQUES ACOOUPLE.

L. Fr. Nev- er married. More fully, ne unques accouple en loiall matrimonie, never joined in lawful marriage. The name of a plea in the action of dower unde nihil habet, by which the ten- ant denied that the dowress was ever law- fully married to the decedent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### NE UNQUES EXECUTOR.

L. Fr.

Never executor. The name of a plea by which the defendant denies that he Is an ex- ecutor, as he is alleged to be; or that the plaintiff is an executor, as he claims to be.

5e apparatus — Not carried into the 5th edition (1979).

### NE UNQUES SEISE QUE DOWER.

L.

Fr. (Never seised of a dowable estate.) In pleading. The general issue in the action of dower unde nil habet, by which the tenant denies that the demandant's husband was ever neised of an estate of which dower might be had. Rose. Real Act. 219, 220.

5e apparatus — Not carried into the 5th edition (1979).

### NE UNQUES SON RECEIVER L.

Fr.

In pleading. The name of a plea in an ac- tion of account-render, by which the defend- ant denies that he ever was receiver of the plaintiff. 12 Vin. Abr. 183.

NE VARIETUR Lat. It must not be' altered. A phrase sometimes written by a notary upon a bill or note, for the purpose of establishing its identity, which, however,

does not affect Its negotiability. Fleekner v. Bank, of United States, 8 Wheat. 338, 5 L. Ed. 681.

5e apparatus — Not carried into the 5th edition (1979).

# H

### HEAP TIDES.

Those tides which hap- pen between the full and change of the moon, twice in every twenty-four hours. Tesche- macher v. Thompson, 18 Cal. 21, 79 Am. Dec. 151.

5e apparatus — Not carried into the 5th edition (1979).

### HEAR.

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This word, as applied to space, can have no positive or precise meaning. It is a relative term, depending for its signifi- cation on the subject-matter in relation to which it is used and the circumstances under which it becomes necessary to apply it to sur- rounding objects. Barrett v. Schuyler County OOurt, 44 Mo. 197 ; People v. Collins, 19 Wend. (N. X.) 60; Boston & P. R. Corp. v. Midland R. Co., 1 Cray (Mass.) 367; In- dianapolis A V. R. Co. v. Newsom, 54 Ind. 125; Holcomb v. Danby, 51 VL 428.

5e apparatus — Not carried into the 5th edition (1979).

# N

### NEAT, NET.

The clear weight or quan- tity of an article, without the bag, box, keg, or other thing In which it may be enveloped.

5e apparatus — Not carried into the 5th edition (1979).

### NEAT CATTLE.

Oxen or heifers. ''Beeves'* may include neat stock, but all neat stock are not beeves. Castello v. State, 36 Tex. 324; Hubotter v. State, 32 Tex. 479.

5e apparatus — Not carried into the 5th edition (1979).

### NEAT-LAND.

Land let out to the yeo- manry. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### NEATNESS.

In pleading. The state- ment in apt and appropriate words of all the necessary facts, and no more. Lawes, PI. 62.

Nee carle deflceret In justitia exM- bend*. Nor should the court be deficient in showing justice. 4 Inst. 63.

Nee tempos nee locus occnrrit regi.

Jeuk. Cent 190. Neither time nor place af- fects the king.

Nee Teniam effnao sanguine casus ha- bet. Where blood is spilled, the case is un- pardonable. 3 Inst. 57.

Nee veniam, laeso nomine, casus ha- bet. Where the Divinity is insulted the case is unpardonable. Jenk. Cent. 167.

5e apparatus — Not carried into the 5th edition (1979).

### NEGATION.

The act of killing.

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## NECESSARIES.

Things indispensable, or things proper and useful, for the suste- nance of human life. This is a relative term, and its meaning will contract or expand ac- cording to the situation and social condition of the person referred to. Megraw v. Woods, 93 Mo. App. 647, 67 S. W. 709; Warner v. Heiden, 28 Wis. 517, 9 Am. Rep. 515; Arts v. Robertson, 50 111. App. 27; Conant v. Burn- ham, 133 Mass. 505, 43 Am. Rep. 532.

In reference to the contracts of infants.

this term is not used in its strictest sense, nor limited to. that which is required to sus- tain life. Those things which are proper and suitable to each individual, according to his circumstances and condition in life, are nec- essaries, if not supplied from some other source. See Hamilton v. Laue, 138 Mass. 360; Jordau v. Coffleld, 70 N. C. 113; Mlddle- bury College v. Chandler, 16 Vt. 685, 42 Am. Dec. 537; Breed v. Judd, 1 Gray (Mass.) 458.

In the case of ships the term “necessaries" means such things as are fit and proper for the service in which the ship is engaged, and such as the owner, being a prudent man, would have ordered if present; e. g., an- chors, rigging, repairs, victuals. Maude A P. Shipp. 71, 113. The master may hypothecate the ship for necessaries supplied abroad so as to bind the owner. Sweet. See The Ply- mouth Rock, 19 Fed. Cas. 898; Hubbard v. Roach (C. C.) 2 Fed. 394; The Gustavla, 11 Fed. Cas. 126.

Necessarian* est quod non potest aliter se habere. That is necessary which cannot be otherwise.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: infant's liability for necessaries — quasi-contractual recovery for necessaries furnished]**

An infant is liable in quasi-contract for necessaries furnished to him — things proper and useful to his sustenance and station — though his other contracts are voidable.

Why: The entry defines necessaries as relative to the person's situation; the infant-necessaries rule is the genuine doctrine the definition exists to serve, complementing the infancy note on MINOR.

**[Scripture] — Scripture**

**[1 Timothy 6:8, KJV]**

And having food and raiment let us be therewith content.

Why: Necessaries are 'things indispensable, or things proper and useful, for the sustenance of human life.' 1 Timothy 6:8 gives scripture's own short list of the necessaries: food and raiment, with contentment as their suf...

## NECESSARIES.

Lat Necessary; un- avoidable; Indispensable; not admitting of choice or the action of the will; needful.

5e apparatus — Carried into the 5th edition (1979).

## NECESSARY.

As used in jurisprudence^ the word “necessary” does not always import an absolute physical necessity, so strong that one thing, to which another may be termed “necessary,” cannot exist without that other. It frequently imports no more than that one thing is

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convenient or useful or essential to another. To employ the means necessary to an end is generally understood as employing any means calculated to produce the end, and not as being confined to those single means without which the end would be entirely un- attainable. McCulloch v. Maryland, 4 Wheat. 316, 413, 4 L. Ed. 579.

As to necessary “Damages,” “Deposit,” “Domicile,” “Implication,” "Intromission,” “Parties," “Repairs,” and “Way,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## NECESSITAS.

Lat. Necessity; a force, power, or influence which compels one to act against his will. Calvin.

— Necossitas culpabilis. Culpable necessity; unfortunate necessity ; necessity which, while it excuses the act done under its compulsion, does not leave the doer entirely free from blame. The necessity which compels a man to kill an- other in self-defense is thus distinguished from that which requires the killing of a felon. See 4 Bl. Comm. 187.— Trinoda necessitas. In Saxon law. The threefold necessity or burden; a term used to denote the three things from con- tributing to the performance of which no lands were exempted, viz., the repair of bridges, the building of castles, and military service against an enemy. 1 Bl. Comm. 263, 357.

Neeessltas est lex temporis et loeL

Necessity is the law of time and of place. 1 Hale, P. C. 54.

Hneiiitu excosat nt extnuut de- lict nm in eapitalibus, quod non operator Idem La ciTllibas. Necessity excuses or ex- tenuates a delinquency in capital cases, which has not the same operation in civil cases. Bac. Max.

Neeessitas faeit Ucitam quod alias non est lioitum. 10 Coke, 61. Necessity makes that lawful which otherwise is not lawful.

Heoessitas indacit prlvileginm quoad Jura privata. Bac. Max. 25. Necessity gives a privilege with reference to private rights. The necessity involved in this maxim is of three kinds, viz.: <1) Necessity of self- preservation; (2) of obedience; and (3) ne- cessity resulting from the act of God, or of a stranger. Noy, Max. 32.'

Neeessitas non habet legem. Necessity has no law. Plowd. l8o. “Necessity shall be a good excuse in our law, and in every other law." Id.

Xeeessitas publlca major est qnam pri- vate. Public necessity is greater than pri- vate. “Death,” it has been observed, “is the last and furthest point of particular neces- sity, and the law imposes it niton every sub- ject that he prefer the urgent service of his king and country before the safety of his life.” Noy, Max. 34; Broom, Max. 18.

Xeeessitas quod cogit, defendit. Ne- cessity defends or Justifies what it compels. 1 Hale, P. C. 54. Applied to the Acts of a sheriff, or ministerial officer, in the execu- tion of his office. Broom, Max. 14.

Xeeessitas sab lege non comtlmetnr, quia quod alias non est licitum neees- sltas faeit lleltum. 2 Inst. 326. Necessity is not restrained by law; since what other- wise is not lawful

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necessity makes lawful.

Xeeessitas vincit legem. Necessity overrules the law. Hob. 144 ; Cooley, Const. Lim. (4th Ed.) 747.

Xeeessitas vincit legem; legnm vin- cula irridet. Hob. 144. Necessity over- comes law ; it derides the fetters of laws.

NECE8SITUDO . Lat. In the civil law. An obligation ; a close connection ; relation- ship by blood. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NECESSITY.

Controlling force; irre- sistible compulsion ; a power or impulse so great that it admits no choice of conduct. When it Is said that an act is done “under necessity,” it may lie. In law. either of three kinds of necessity: (1) The necessity of pre- serving one’s own life, which will excuse a homicide; (2) the necessity of obedience, ns to the laws, or the obedience of one not sui Juris to his superior; (3) the necessity caused by the act of God or a stranger. See Jacob; Mozley & Whitley.

A constraint upon the will whereby a person Is urged to do that which his judgment disap- proves, and which, it is to be presumed, his will (if left to itself) would reject. A man. there- fore, is excused for those actions which are done through unavoidable force and compulsion. Wharton.

—Necessity, homicide by. A species of Jus- tifiable homicide, because it arises from some unavoidable necessity, without any will, inten- tion, or desire, and without any inadvertence or negligence in the party killing, and therefore without any shadow of blame. As, for in- stance, by virtue of such an office as obliges one, in the execution of public justice, to put '.a malefactor to death who has forfeited his life to the laws of his country. But the law must require it, otherwise it is not justifiable. 4 Bl. Comm. 178.

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**[Law] — Law**

**[Maxim: Necessitas non habet legem — necessity has no law]**

Necessity has no law: an act compelled by irresistible necessity — as the preservation of one's own life — may be justified where choice of conduct was impossible.

Why: The entry catalogues three kinds of legal necessity; the maxim is the genuine principle behind necessity as justification, not a foreign import.

**[Scripture] — Scripture**

**[Mark 2:25, KJV]**

And he said unto them, Have ye never read what David did, when he had need, and was an hungred, he, and they that were with him?

Why: Necessity is the controlling force admitting no choice of conduct — the doctrine excusing what is otherwise unlawful. Jesus himself states the archetypal case: David's need justifying the eating of the shewbread, 'whi…

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Necessity is the mother of invention]**

[Maxim: "Necessity is the mother of invention" (proverb; traced to Plato's Republic)] — compulsion as the engine of human ingenuity.

Why: Classical wisdom on necessity; the entry's sense is legal compulsion (irresistible force admitting no choice). The proverb illuminates the broader human truth of the term; attribution phrased as 'traced to' rather tha…

## NECK- VERSE.

The Latin sentence,

” Miserere met, Devs," was so called, because the reading of it was made a test for those who claimed benefit of clergy.

5e apparatus — Carried into the 5th edition (1979).

## NECROPHILISM.

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## NECROPSY.

An autopsy, or post-mor- tem examination of a human body.

5e apparatus — Not carried into the 5th edition (1979).

## NEEDLESS.

In a statute against “need- less” killing or mutilation of any animal,' this term denotes an act done without any useful motive, in a spirit of wanton crueljty,. or for the mere pleasure of destruction. Grise v. State, 37 Ark. 460.

5e apparatus — Carried into the 5th edition (1979).

## NEFAS.

Lat That which is against, right or the divine law. A wicked or impi- ous thing or act Calvin.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XEFASTCS.

Lat. Inauspicious. Ap- plied, in the Roman law, to a day on which It was unlawful to open the courts or admin- ister justice.

Xegatio conclusionls est error La lege.

Wing. 268. The denial of a conclusion is error in law.

Xegatio destrait negationem, et ta- bs faciuat affirmationem. A negative destroys a negative, and both make an af- firmative. Co. Litt 1466. Lord Coke cites this as a rule of grammatical construction, not always applying In law.

Xegatio duplex est affirmatio. A

double negative is an affirmative.

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5e apparatus — Not carried into the 5th edition (1979).

# N

## NEGATIVE.

A denial ; a proposition by which something is denied ; a statement in the form of denial. Two negatives do not make a good issue. Steph. PI. 386, 387.

—Negative averment. As opposed to the traverse or simple denial of an affirmative allegation, a negative averment is an allegation of some substantive fact, e. g., that premises are not in repair, which, although negative in form, is really affirmative in substance, and the party alleging the fact of non-repair mast prove

it. Brown. — Negative condition. One by

which it is stipulated that a given thing shall not happen.— Negative pregnant. In pleading. A negative implying also an affirmative. Cowell. Such a form of negative expression as may imply or carry within it an affirmative. Steph. PI. 318; Fields v. State, 134 Ind. 46, 32

N. E. 780; Stone v. Quaal, 36 Minn. 46, 29 N.

W. 326. As if a man be said to have aliened land in fee , and he says he hat not aliened in fee, this is a negative pregnant; for, though it be true that he has not aliened in fee, yet it may be that he has made an estate in tail. Cowell.

As to negative “Covenant,” "Easement," "Servitude," "Statute," and “Testimony,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## NEGLECT.

Omission ; failure to do something that one Is bound to do; care- lessness.

The term Is used In the law of bailment as synonymous with “negligence." But the latter word Is the closer translation of the Latin “neoligentia.”

As used in respect to the payment of mon- ey, refusal is the failure to pay money when demanded ; neglect is the failure to pay money which the party Is hound to pay with- out demand. Kimball v. Howland, 6 Gray

(Mass.) 224.

The term means to omit, as to neglect busi- ness or payment or duty or work, and is generally used in this sense. It does not generally imply carelessness or imprudence, but simply an emission to do or perform some work, duty, or act. Rosenplaenter v. Boessle, 54 N. Y. 262. —Culpable neglect. In this phrase, the word “culpable” means not criminal, but censurable ; and, when the term Is applied to the omission by a person to preserve the means of enforcing his own rights, censurable is more nearly an equivalent. As he has merely lost a right of action which he might voluntarily relinquish, and has wronged nobody but himself, _ culpable neglect conveys the idea of neglect which exists where the loss can

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fairly be ascribed to the pnrtv's own carelessness, improvidence, or folly. Bank v. Wright, 8 Allen (Mass.) 121 ; Ben- nett v. Bennett, 93 Me. 241, 44 Atl. 894.— Willful neglect. Willful neglect is the neg- lect of the husband to provide for his wife the common necessaries of life, he having the abil- ity to do so ; or it is the failure to do so by reason of idleness. profligacy, or dissipation. Civil Code Cal. g 105.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 4:17, KJV]**

Therefore to him that knoweth to do good, and doeth it not, to him it is sin.

Why: Neglect is 'omission; failure to do something that one is bound to do.' James 4:17 is scripture's doctrine of omission: knowing the good one is bound to do, and not doing it, is sin. The verse states the legal-moral c…

## NEGLIGENCE.

The omission to do something which a reasonable man, guided by those considerations which ordinarily reg- ulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do. It- must be determined In all cases by reference to the situation and knowledge of the parties and all the attendant circumstances. Nitro- Glycerln Case, 15 Wall. 536, 21 L. Ed. 206; Blythe v. Birmingham Waterworks Co., 11 Exch. 784.

Negligence, in its civil relation, is such an Inadvertent imperfection, by a responsible human agent. In the discharge of a legal du- ty, us immediately produces, in an ordinary and natural sequence, a damage to another. Whart Neg. f 3.

It is conceded by all the authorities that the standard by which to determine wheth- er a person has been guilty of negligence is the conduct of the prudent or careful or diligent man. Bigelow, Torts, 261.

The failure to observe, for the protection of the interests of another person, that degree of care, precaution, and vigilance which the cir- cumstances justly demand, whereby such other person suffers injury. Cooley, Torts, 630.

The failure to do what a reasonable and pru- dent person would ordinarily have done under the circumstances of the situation, or the doing what such a person under the existing circum- stances would not have done. Baltimore &

P. R. Co. v. Jones, 95 U. S. 441, 24 L. Bd. 506. ,

The opposite of care and prudence ; the omis- sion to use the means reasonably necessary to avoid injury to others. Great Western H. Co. v. Haworth, 39 111. 353.

Negligence or carelessness signifies want of care, caution, attention, diligence, or discre- tion in one having no positive intention to in- jure the person complaining thereof. The words “reckless,” “indifferent,” *rcareless," and “wan- ton” are never understood to signify positive will or intention, unless when joined with oth- er words which show that they are to receive an artificial or unusual, if not an unnatural. Interpretation. Lexington v. Lewis, 10 Bush (Ky.) 677.

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Negligence is any culpable omission of a pos- itive duty. It differs from heedlessness, in that heedlessness is the doing of an act in vio- lation of a negative duty, without adverting to its possible consequences. In both cases there is inadvertence, and there is breach of duty. Aust. Jur. § 630.

— Actionable negligence. See Actionable. —Collateral negligence. In the law relat- ing to the responsibility of an employer or principal for the negligent acts or omissions of his employe, the term “collateral" negli- gence is sometimes used to describe negligence attributable to a contractor employed by the principal and for which the latter is not re- sponsible, though he would be responsible for the same thing if done by his servant. Weber v. Railway Co., 20 App. Div. 292. 47 N. Y. Supp. 11.—- Comparative negligence. See Comparative.— Contributory negligence. Contributory negligence, when set up as a de- fense to an action for injuries alleged to have been caused by the defendant’s negligence, means any want of ordinary care on the part of the person injured, (or on the part of an- other whose negligence is Imputable to him,) which combined and concurred with the de- fendant’s negligence, and contributed to the injury as a proximate cause thereof, and as an element without which the injury would not have occurred. Railroad Co. v. Young, 153 Ind. 163, 54 N. E. 791: Dell v. Glass Co.. 169 Pa. 549, 32 Atl. 601; Barton v. Railroad Co., 52 Mo. 253, 14 Am. Rep. 418; Plant Inv. Co. v. Cook, 74 Fed. 503. 20 C.

C. A. 625; McLaughlin v. Electric Light Co.. 100 Ky. 173, 37 S. W. 851, 34 L. R. A. 812 ; Ri- ley v. Railway Co., 27 W. Va. 164.— Criminal negligence. Negligence of such a character, or occurring under such circumstances, as to be punishable as a crime by statute; or (at common law) such a flagrant and reckless dis- regard of the safety of others, or wilful indif- ference to the injury liable to follow, as to convert an act otherwise lawful into a crime when it results in personal injury or death. 4 Bl. Comm. 192, note; Cook v. Railroad Co., 72 Ga. 48; Rankin v. Transportation Co., 73 Ga. 229. 54 Am. Rep. 874; Railroad Co. v. Choliette,. 33 Neb. 143. 49 N. W. 1114.— Cnl-

Siable negligence. Failure to exercise that egree of care rendered appropriate by the par- ticular circumstances, and which a man of ordinary prudence in the same situation and with equal experience would not have omitted. Car- ter v. Lumber Co., 129 N. C. 203, 39 S. E. 828 ; Railroad Co. v. Newman, 36 Ark. 611 ; Woodman v. Nottingham, 49 N. Il. 387, 6 Am. Rep. 526; Kimball v. Palmer, 80 Fed. 240. 25

C. C. A. 394; Railway Co. v. Brown, 44 Kan. 384, 24 Pac. 497 ; Railroad Co. v. Plaskett, 47 Kan. 107, 26 Pac. 401.— Gross negligence. In the law of bailment. The want of slight diligence. The want of that care which every man of common sense, how inattentive soever, takes of bis own property. The omission of that care which even inattentive and thought- less men never fail to take of their own prop- erty. Litchfield v. White, 7 N. Y. 442, 57 Am. Dec. 534 ; Lycoming Ins. Co. v. Barringer, 73 111. 235; Seybel v. National Currency Bank 54 N. Y. 299, 13 Am. Rep. 583; Bannon v. Bal- timore A O. R. Co.. 24 Md. 124; Briggs v. Spaulding. 141 U. S. 132, 11 Sup. Ct. 925, 35 L. Ed. 662; Preston v. Prather, 137 U.

S. 604, 11 Sup. CL 162, 34 L. Ed. 788. In the law of torts (and especially with reference to

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personal injury cases), the term means such negligence as evidences a reckless disre- gard of human life, or of the safety of persons exposed to its dangerous effects, or that entire want of care which would raise the presump- tion of a conscious indifference to the rights of others which is equivalent to an intentional violation of them. McDonald v. Railroad Co. (Tex. Civ. App.) 21 S. W. 775; Railroad Co. v. Robinson, 4 Bush (Ky.) 509; Railroad Co. v. Bodemer, 139 111. 596, 29 N. E. 692, 32 Am. SL Rep. 218; Denman v. Johnston, 85 Mich. 387, 48 N. W. 565; Railroad Co. v. Orr, 121 Ala. 489, 26 South. 35; Coit v. West- ern Union Tel. Co., 130 Cal. 657, 63 Pac. 83, 53 L. R. A. 678, 80 Am. St Rep. 153.— Has- ardona negligence. Such careless or reck- less conduct as exposes one to very great dan- ger of injury or to imminent peril. See Riggs v. Standard Oil Co. (C. C.) 130 Fed. 204.— Legal negligence. Negligence per se ; the omission of such care as ordinarily prudent persons exercise and deem adequate to the cir- cumstances of the case. In cases where the common experience of mankind and the common judgment of prudent persons have recognized that to do or omit certain acts is prolific of danger, the doing or omission of them is “legal negligence.” Carrico v. Railway Co.. 35 W. Va. 389. 14 S. E. 12; Drake v. Wild, 70 Vt. 52, 39 Atl. 248: Johnson v. Railway Co., 49 ' Wis. 529, 6 N. W. 886. — Negligence per se. Conduct, whether of action or omission, which may be declared and treated as negligence with- out any argument or proof as to the particular surrounding circumstances, either because it is in violation of a statute or valid municipal or- dinance. or because it is so palpably opposed to the dictates of common prudence that it can be said without hesitation or doubt that no careful person would hnve been guilty of it. See Missouri Pac. Ry. Co. v. Lee, 70 Tex. 496.

7 S. W. 857; Central R. & B. Co. v. Smith. 78 Ga. 694, 3 S. E. 397 ; Murray v. Missouri Pac. R. Co., 101 Mo. 236, 13 S. W. 817. 20 Am. St. Rep. 601: Moser v. Union Traction Co., 205 Pa. 481, 55 Atl. 15. — Ordinary .neg- ligence. The omission of that, care which a man of common prudence usually takes of his own concerns. Onderkirk v. Central Nat. Bank. 119 N. Y. 263. 23 N. E. 875; Scott v. Depeyster. 1 Edw. Ch. (N. Y.) 543 : Tyler v. Nelson, 109 Mich. 37, 66 N. W. 671 ; Ton- cray v. Dodge County. 33 Neb. 802. 51 N. W. 235; Briggs v. Spaulding. 141 U. S. 132, 11 Sup. Ct. 924. 35 L. Ed. 662 ; Lake Shore, etc., Ry. Co. v. Murphy, 50 Ohio St. 135. 33 N. E. 403.— Slight negligence. Slight negligence is not slight want of ordinary care contributing to the injury, which would defeat an action for negligence. Slight negligence is defined to be only an absence of that degree of care and vigi- lance which persons of extraordinary prudence

and foresight are accustomed to use. Briggs v. Spaulding. 141 U. S. 132, 11 Sup. Ct. 924, 35 L. Ed. 662; French v. Buffalo, etc., R. Co., *43 N. Y. 108; Litchfield v. White, 7 N,

Y. 438. 57 Am. Dec. 534; Griffin v. Willow. 43 Wis. 512.— Wanton negligence. Heck; less indifference to the consequences of an act or omission, where the party acting or failing to act is conscious of his conduct and. without any actual intent to injnre, is aware, from his knowledge of existing circumstances and con- ditions, that his conduct will inevitably or probably result in injury to another. Louis- ville & N. R. Co. v. Webb, 97 Ala. 308, 12 South. 374; Alabama G. S. R. Co. v. Hall. 105 Ala. 599. 17 South. 176.— Willful negli- gence.

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Though rejected by some courts 'and writers as involving a contradiction of terms, this phrase is occasionally used to describe ’ a higher or more aggravated form of negligence than “gross.” It then means a willful deter* mination not to perform a known duty, or rf reckless disregard of the safety or the rights of others, as manifested by the conscious and intentional omission of the care proper ubder the circumstances. 8ee Victor Coal Co. v* Muir, 20 Colo. 320. 38 Pac. 378, 26 L R. A. 435, 46 Am. St. Rep. 299 ; Holwerson v. Rail- way Co., 157 Mo. 216, 57 S. W. 770, 50 L R.

A. 860; Lockwood v. Railway Co., 92 Wis. 97, 65 N. W. 866; Kentucky Cent. R. Co. v. Carr (Ky.) 43 S. W. 193, 19 Ky. Law Rep. 1172; Florida Southern Ry. v. Hirst 30 Fla. 1, 11 South. 506, 16 L. R. A. 631. 32 Am. St: Rep. 17 ; Lexington v. Lewis, 10 Bush (Ky.) 680; Illinois Cent. R. Co. v. Leiner. 202 III. 624, 67 N. E. 398. 95 Am. St. Rep. 266.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: reasonable-person standard — negligence measured objectively]**

Negligence is judged by the objective standard: the omission to do what a reasonable person, guided by the considerations ordinarily regulating human conduct, would do in the same situation.

Why: The entry states the classic reasonable-man definition; the objective-standard rule is the genuine doctrine the definition states, framed as [Law:] rather than quoted back.

## NEGLIGENT ESCAPE.

An escape from confinement effected by the prisoner without the knowledge or connivance of the keeper of the prison, but which was made possible or practicable by the latter’s negligence, or by his omission of such care and vigilance as he was legally bound to exercise in the safe-keeping of the prisoner.

NEGLIGENrtA. Lat. In the civil law. Carelessness; inattention; the omission of proper care or forethought The term is not exactly equivalent to our “negligence,” In- asmuch as it was not any negligentia, but only a high or gross degree of it, that amounted to culpa, (actionable or punishable fault)

NegligentIn temper hebet infortunium comitem. Negligence always has misfor- tune for a companion. Co. Litt. 246b; Shep. Touch. 476.

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## NEGOGE.

Fr. Business; trade; man- agement of affairs.

NEGOTIABILITY . In mercantile law. Transferable quality. That quality of bills of exchange and promissory notes which renders them transferable from one person to another, and from possessing which they are emphatically termed "negotiable paper.” 3 Kent, Comm. 74, 77, 89, et seq. See Story. Bills, | 60.

5e apparatus — Not carried into the 5th edition (1979).

## NEGOTIABLE.

An instrument embody- ing an obligation for the payment of money is called “negotiable”

when the legal title to the instrument Itself and to the whole

amount of money expressed upon its face, with the right to sue therefor in bis own name, may be transferred from one person to another without a formal assignment, but by mere indorsement and delivery by the holder or by delivery only. See 1 Daniel, Nego. Inst I 1 ; Walker v. Ocean Bank, 19 Ind. 247 ; Robinson v. Wilkinson, 38 Mich. 299; Odell v. Gray, 15 Mo. 337, 55 Am. Dec. 147.

— Negotiable instruments. A general name for bills, notes, checks, transferable bonds or coupons, letters of credit, and other negotiable written securities. Any written securities which may be transferred by indorsement and delivery or by delivery merely, so as to vest in the indorsee the legal title, and thus enable him to sue thereon in his own name. Or, more technically, those instruments which not only carry the legal title with them by indorsement or delivery, but carry as well, when transfer- red before maturity, the right of the transferee to demand the full amounts which their faces call for. Daniel. Neg. Inst. 8 la. A nego- tiable instrument is a written promise or re- quest for the payment of a certain sum of mon- ey to order or bearer. Civ. Code Cal. | 3087. —Negotiable words. Words and phrases which impart the character of negotiability to bills, notes, checks, etc., in which they are Inserted ; for instance, a direction to pay to A', “or order” or “bearer.”

’ NEGOTIATE. To discuss or arrange a sale or bargain ; to arrange the preliminaries of a business transaction. Also to sell or discount negotiable paper, or assign or trans- fer it by indorsement and delivery. Palmer v. Perry, 6 Gray (Mass.) 420; Newport Nat. Bank v. Board of Education, 114 Ky. 87, 70 S. W. 186; Odell v. Clyde, 23 Misc. Rep. 734, 53 N. Y. Snpp. 61 ; Blakiston v. Dudley, 5 Duer (N. Y.) 377.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — holder in due course takes free of personal defenses]**

The whole office of negotiability is the holder in due course: one who takes a negotiable instrument for value, in good faith, and without notice takes free of the transferor's personal defenses.

Why: The entry defines negotiability as transfer of title and the right to sue; the holder-in-due-course doctrine is the genuine commercial-law payoff of that definition.

## NEGOTIATION.

. The deliberation, dis- cussion, or conference upon the terms of a proposed agreement; the act of settling or arranging the terms and conditions of a bar- gain, sale, or other business transaction. Also the transfer of, or act of putting into circulation, a negotiable Instrument

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## NEGOTIOBTIM GESTIO.

Lat. In the civil law. Literally, a doing of business or businesses. A species of spontaneous agen- cy, or an interference by one in the affairs of another, in his absence, from benevolence or friendship, und without authority. 2 Kent, Comm. 016, note; Inst. 3, 28, 1.

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**[Law] — Law**

**[Law: negotiorum gestio — the gestor owes due care and recovers necessary expenses]**

One who spontaneously intermeddles in another's affairs from benevolence is bound to complete the undertaking with due care, and may in turn recover necessary and useful expenses — quasi-contract on both sides.

Why: The entry defines the spontaneous agency; the due-care duty and expense recovery are the genuine civil-law consequences the definition exists to trigger.

## NEGOTIOKTJM GE8TOR.

Lat. In the civil law. A trausacter or manager of busi- ness; a person voluntarily constituting bim- self agent for another; one who, without any mandate or authority, assumes to take charge of an affair or concern for another person, in the latter's absence, but for his interest.

One who spontaneously, and without the knowledge or consent of ■ the owner, inter- meddles with his property, as to do work on it, or to carry it to another place, etc. Story, Ballon. { 189.

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## NEGRO.

The word, “negro” means a black man, one descended from the African race, and does not commonly include a mu- latto. Felix v. State, 18 Ala. 720. But the laws of the different states are not uniform in this respect, some including In the de- scription “negro” one who has one-eighth or more of African blood.

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**[Humanity] — Humanity / Fiction & Film**

**[Mark Twain, Adventures of Huckleberry Finn, 1884]**

(paraphrase) Twain's Jim — the runaway enslaved Black man who is the novel's moral center — is the human being the era's law sorted under this headword; the entry's cold taxonomy set against the novel's portrait. (paraphrase)

Why: Genuine link: the novel's central Black character against the dictionary's racial taxonomy. Paraphrase only — no dialect quoted.

## NEIF.

In old English law. A woman who was born a villein, or a bondwoman.

5e apparatus — Not carried into the 5th edition (1979).

## NEIGHBORHOOD.

A place near; an adjoining or surrounding district; a more immediate vicinity; vicinage. See Langley v. Barnstead, 63 N. H. 240; Madison v. Mor- ristown Gaslight Co., 05 N. J. Eq. 356, 54 Atl. 439; Rice v. Sims, 3 Hill (S. C.) 5; Lindsay Irr. Oo. v. Mehrtens, 97 Cal. 676, 32 Pac. 802; State v. Henderson, 29 W. Va. 147, 1 S. E. 225; Peters v. Bourneau, 22 111. App. 177.

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## NEITHER PARTY.

An abbreviated form of docket entry, meaning that, by agree- ment, neither of the parties will further appear in court in that suit. Gendron v. Hovey, 98 Me. 139, 56 Atl. 583.

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## NEMBDA.

In Swedish and Gothic law. A Jury. 3 Bl. Comm. 349, 359.

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## NEMINE OONTRADIOENTE.

Lat No

one dissenting; no one voting in the nega- tive. A phrase used to indicate the unani- mous consent of a court or legislative body to a Judgment resolution, vote, or motion. Commonly abbreviated "ncm. eon.”

Neminem oportet aua aspiaatioreaa legibua. Co. Litt 97b. No man ought to be wiser than the laws.

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## NEMO.

Lat No one; no man. The Ini- tial word of many Latin phrases and maxima, among which are the following:

Nemo admittcndua eat InliaWHtira seipsum. Jenk. Cent 40. No man is to bo admitted to Incapacitate himself.

Nemo agit In aelpsnm. No man acts against himself. Jenk. Cent p. 40, case 76, A man cannot be a Judge and a party in his own cause. Id. ; Broom, Max. 216».

Nemo, alienae rei, sine sutisdatione, de- fensor idonens lntelligltur. No man ia

considered a competent defender of another’s property, without security. A rule of the Roman law, applied in part in admiralty cases. 1 Curt. 202.

Nemo alieno nomine lege age re potest.

No one can sue in the name of another. Dig. 50. 17, 123.

Nemo allegans snam tnrpltndlnem eat nndlendns. No one alleging his own base- ness is to be heard. The courts of law have

properly rejected this as a rule of evidence.

7 Term R. 601.

Memo Ilia pnmitor pro eodem. delicto.

No man is punished twice for the same of- fense. 4 BL Comm. 315 ; 2 Hawk. P. C. 377.

Memo cogitatlonls paasm patitnr. No

one suffers punishment on account of his thoughts. Tray. Lat Max. 362.

Memo eogitnr rem raam vender®, etiam jnsto pretlo. No man is compelled to sell his own

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property, even for a Just price. 4 Inst. 275.

Memo contra factnm suum venire po- test. No man can contravene or contradict his own deed. 2 Inst. 66. The principle of estoppel by deed. Best, Ev. p. 408, | 370.

Memo dare potest quod non habet. No

man can give that which he has not. Fleta, lib. 3, c. 15, | &

Memo dat qnl non habet. He who hath not cannot give. Jenk. Cent 250; Broom, Max. 489n; 6 a B. (N. S.) 478.

Memo de domo sna extrabi potest. No .

one can be dragged out of his own house. In other wohls, every man's house is his castle. Dig. 50, 17, 103.

Nemo debot bis pnnlri pro nno delloto.

No man ought to be punished twice for one offense. 4 Coke, 43a; 11 Coke, 58b. No man shall be placed in peril of legal penal- ties more than once upon the same accusa- tion. Broom, Max. 348.

Memo debet bis vexari [si oonstet on- rim qnod sit] pro us et eadem omasa.

No man ought to be twice troubled or har- assed [if it appear to the court that it is] for one and the same cause. 5 Coke, 61a. No man can be sued a second time for the same cause of action, if once Judgment has been rendered. See Broom, Max. 327, 348. No man can be held to bail a second time at the suit of the same plaintiff for the same cause of action. 1 Chit Archb. Pr. 476.

Memo debet esse judex In propria

eansa. No man ought to be a Judge in his own cause. 12 Coke, 114a. A maxim deriv- ed from the civil law. Cod. 3, 5. Called a "fundamental rule of reason and of nat- ural Justice." Burrows, Sett. Cas. 194, 197.

Memo debet immlscere se rei ad se nihil pertinent!. No one should intermeddle with a thing that in no respect concerns him. Jenk. Cent p. 18, case 32.

Nemo debet in eommwnione invitns tenerl. No one should be retained in a part- nership against his will. Selden .v. Vermllya,

2 Sundf. (N. X.) 568, 583; United Ins. Co. v. Scott, 1 Johns. (N. X.) 106, 114.

Memo debet locupletari allena Jaetnra.

No one ought to be enriched by another's loss. Dig. 0, 1, 48, 65 ; 2 Kent, Comm. 336.; 1 Karnes, Eq. 331.

Nemo debet loonpletari ex alterina in- commodo. No one ought to be made rich out of another's loss. Jenk. Cent 4 ; Taylor v. Baldwin, 10 Barb. (N. X.) 626, 633.

Memo debet rem snam sine facto ant defeetn sno amlttere. No man ought to lose his property without bis own act or de- fault Co. Litt 263a.

Memo dnobna utatur officii*. 4 Inst 100. No one should hold two offices, i. e., at the same time.

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Memo ejuadem tenement! slmul potest esse hseres et do min ns. No one can at

the same time be the heir and the owner of the same tenement See 1 Reeve, Eng. Law. 106.

Memo enlm aliquam partem rente in- telligere poult anteqnam totnm iteram atqne iteram perlegerlt. No one is able rightly to understand one part before he has again and again read through the whole. Broom, Max. 593.

Memo eat baeres viventi*. No one is the

heir of a living person. Co. Litt 8a, 226. No one can be heir during the life of his an- cestor. Broom, Max. 522, 523. No person can be the actual "complete heir of another till the ancestor is previously dead. 2 Bl. Comm. 208.

Nemo est snpra lege*. No one Is above the law. Lofft, 142.

Memo ex alterin* facto prngravarl de- bet. No man ought to be burdened in con- sequence of another’s act 2 Kent Comm. 64&

Memo ex consllio obligator. No man is bound in consequence of his advice. Mere advice wijj not create the obligation of a mandate. Story, Bailm. f 155.

Memo ex dolo sno proprlo relevetur, ant aaxiHom capiat. Let no one be reliev- ed or gain an advantage by his own fraud. A civil law maxim.

Memo ex proprlo dolo conseqnitnr ac- tionem. No one maintains an action arising out of his own wrong. Broom, Max. 297.

.Nemo ex sno delicto meliorem- ium condi tionem facere potest. ■ • No one can

make his condition better by his own mis- deed. Dig. 50, 17, 104, L

Memo in propria causa testis esse dels*

et. No one ought to be a witness In his own cause. 3 Bl. Comm. 371.

Nemo inaudltus condemn art debet si non sit oontumax. No man ou'ght to be condemned without being heard unless he be contumacious. Jenk. Cent p. 18, case 12, in marg.

Nemo jus sibi dloere potest. No one

can declare the law for himself. No one is entitled to take the law into his own hands. Tray. Lat. Max. 366.

Nemo mllitans Deo implieetur seo- ularibus negotiis. No man who is warring for [in the service of] God should be involved in secular matters. Co. Litt. 706. A prin- ciple of the old law that men of religion were not bound to go in person with the king to war.

Nemo nascitur artlfex. Co. Litt 97. No one is born an artificer.

Nemo patrlam la qua aatus est exuere, aeo ligeaatiss debitum ejurare possit.

No man can renounce the country in which he was born, nor abjure the obligation of his allegiance. Co. Litt. 129a; Broom, Max. 75; Fost. Cr. Law, 184.

Nemo plus eommodl bseredl suo relia- quit quam ipsebabuit. No one leaves a greater benefit to his heir than he had him- self. Dig. 50, 17, 120.

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Nemo plus juris ad alium transferee potest quam Ipse babet. No one can

transfer more right to another than he has himself. Dig. 50, 17, 54; Broom, Max. 467, 469.

Nemo potest contra reeordum vcrtfl- care per patrlam. No one can verify by the country against a record. 2 Inst. 380. The issue upon matter of record cannot be to the Jury. A maxim of old practice.

Nemo potest esse dominus et bares.

No man can be both owner and heir. Hale, Com. Law, c. 7.

Nemo potest esse simul actor et ju- dex. No one can be at once suitor and Judge. Broom, Max. 117.

Nemo potest esse tenons et dominus.

No man can be both tenant and lord [of the same tenement] Glib. Ten. 142.

Nemo potest faeere per nHnm quod

per se non potest. No one can do that by another which he cannot do of himself. Jenk. Cent. p. 237, case 14. A rule said to hold in original grants, but not in descents;

as where an office descended to a woman, in which case, though she could not exercise the office in person, she might by deputy. Id.

Nemo potest faeere per obliquum quod non potest faoere per directum. No man

can do that indirectly which he cannot do directly. 1 Eden, 512.

Nemo potest mutare consilium sunn In alterius lnjuriam. No man can change his purpose to another's injury. Dig. 50, 17, 75; Broom, Max. 34.

Nemo potest plus juris ad alium transferee quam Ipse babot. Co. Litt. 309 ; Wing. Max. 56. No one can transfer a greater right to another than he himself has.

Nemo potest sibi debere. No one can owe to himself.

Nemo prmsen* nisi intelligat. One is

not present unless he understands.

Nemo prsssumitur alienam posterita- tem sum prmtulisse. No man is presumed to have preferred another's posterity to his own. Wing. Max. p. 285, max. 79.

Nemo prmsumitur donare. No one Is

presumed to give. Haren v. Foster, 9 Pick. (Mass.) 128, 19 Am. Dec. 353.

Nemo prmsumitur esse lmmemor sum mternm salutis, et mudme in articulo mortis. 6 Coke, 76. No one is presum- ed to be forgetful of his own eternal wel- fare, and particularly at the point of death.

Nemo prsssumitur ludere in extremis.

No one is presumed to trifle at the point of death.

Nemo prmsumitur mains. No one is

presumed to be bad.

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Nemo probibetur pluses negotiationes sive artes exereere. No one is prohibited from following several kinds of business or several arts. 11 Coke, 54a. The common law doth not prohibit any person from using several arts or mysteries at his pleasure. Id.

Nemo probibetur pluribus defexsiom- Ibus uti. Co. Litt 304a. No one is pro- hibited from making use of several defenses.

Nemo prudens punit ut prmterita revooentur, sed ut future prmvenian- tur. No wise man punishes in order that past things may be recalled, but that future wrongs may be prevented. 2 Bulst. 173.

Nemo punitur pro alieno delicto.

Wing. Max. 336. No one is punished for another's wrong.

Nemo p unitor sine injuria, facto, i«n defalta. No one is punished unless for some wrong, act, or default. 2 Inst. 287.

Nemo qui oondemnare potest, ab- solvera non potest. No one who may con* demn Is unable to acquit. Dig. 00, 17, 37.

Nemo sibi esse judex vel suis jus dioere debet. No one ought to be his own judge, or the tribunal In his own affairs. Broom, Max. 116, 121. See I* R. 1 C. P. 722, 747.

Nemo sine aetioue experitur, et boe non sine breve sire libello conventional!.

No one goes to law without an action, and no one can bring an action without a writ or bill. Bract fol. 112.

Nemo tenetur ad ImpossibUe. No one

is bound to an impossibility. Jenk. Cent 7; Broom, Max. 244.

Nemo tenetur armare adversarlum contra se. Wing. Max. 665. No one is bound to arm his adversary against himself.

Nemo tenetur divinare. No man is

bound to divine, or to have foreknowledge of, a future event 10 Coke, 55a.

Nemo tenetur edere instrum enta con- tra se. No man is bound to produce writ- ings against himself. A rule of the Roman law, adhered to in criminal prosecutions, but departed from in civil questions. BelL

Nemo tenetur inform are qui nescit, sed quisquia scire quod informat. Branch, Princ. No one is bound to give information about things he is ignorant of, but every one is bound to know that which he gives in- formation about

Nemo tenetur jurare in auam turpi- tudlnem. No one is bound to swear to the fact of his own criminality; no one can be forced to give his own oath in evidence of his. guilt Bell; Halk. 100.

Nemo tenetur p rode re seipsum. No

one is bound to betray himself. In other words, no one can be compelled to criminate himself. Broom, Max. 968.

Nemo tenetur seipsum aeeusare. Wing. Max. 486. No one is bound to accuse him- self.

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Nemo tenetur seipsum infort uniis et periculis exponere. No one is bound to expose himself to misfortunes and dangers. Co. Lltt. 2536.

Nemo unquam judlcet in se. No one

can ever be a judge in his own cause.

Nemo unquam vir magmas fait, sine aliquo divino afflata. No one was ever a great man without >some divine inspiration. Cicero.

Nemo videtur fraudare eos qui sciunt et oonaentlunt. No one seems [is supposed] to defraud those who know and assent [to his acts.] Dig. 50, 17, 145.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo judex in causa sua — no one should be judge in his own cause]**

No one should be judge in his own cause: a tribunal with an interest in the outcome is disqualified, and justice must be administered by an impartial judge.

Why: The entry catalogues the nemo maxims including 'a man cannot be a judge and a party in his own cause'; the maxim is the genuine root of disqualification for bias and natural justice.

## NEMY.

L. Fr. Not. Litt j 3.

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## NEPHEW.

The son of a brother or sister. But the term, as used in wills and other documents, may include the children of half brothers and sisters and also grand- nephews, if such be the apparent Intention, but not the nephew of a husband or wife, and not (presumptively) a nephew who is illegitimate. See Shephard v. Shephard, 57 Conn. 24, 17 Atl. 173; Lyon v. Lyon, 88 Me. 395, 34 Atl. 180; Brower v. Bowers, 1 Abb. Dec. (N. Y.) 214 ; Green's Appeal, 42 Pa. 25.

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## NEPOS.

Lat. A grandson.

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## NEPTI8.

Lat A granddaughter.

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## NEPTTOY.

In Scotch law. A grandson. Skene.

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## NET.

, Clear of anything extraneous ; with all deductions, such as charges, expenses, discounts,

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commissions, taxes, etc.; free from expenses. St. John v. Erie R. Co., 22 Wall. 148, 22 L. Ed. 743; Scott y. Hartley, 126 Ind. 239, 25 N. E. 826 ; Gibbs v. People's Nat. Bank, 198 111. 307, 64 N. E. 1060.

—Net balance. The proceeds of sale, after deducting expenses. Evans v. Wain,' 7l Pa-. 69.— Net earnings. See Eabmxgs.— Net in- come. The profit or income accruing from a business, fund, estate, etc., after deducting all necessary charges and expenses of every kind. Jones & Nimick Mfg. Co. v. Com., 69 Pa. 137; In re Young, 15 App. Div. 285. 44 N. Y. Supp. 585: Flckett v. Cohn (Com. PI.) 1 N.

Y. Supp. 436.— Net premium. In the busi- ness of life insurance, this term is used to designate that portion of the premium which is intended to meet the cost of the insurance, both current and future: its amount is cal- culated upon the basis of the mortality tables and upon the assumption that the company will receive a certain rate of interest upon all its assets; it does not include the entire premium paid by the assured, but does include a certain sum for expenses. Fuller v. Metropolitan L. Ins. Co., 70 Conn. 647, 41 Atl. 4.— Net price. The lowest price, after deducting all discounts. — Net profits. This term does not menn what is made over the losses, expenses, and interest on the amount invested. It includes the gain that accrues on the investment, after deducting simply the losses and expenses of the business. Tutt v. Land, 50 Ga. 350.— Net tonnage. The net tonnage of a vessel is the difference between the entire cubic contents of the interior of the vessel numbered in tons and the space occupied hv the crew and by propelling machinery. The. Thomas Melville, 62 Fed. 749. 10 C. C. A. 619. —Net weight. The weight of an article or collection of articles, after deducting from the gross weight the weight of the boxes, coverings, casks, etc., containing the same. The weight of an animal dressed for sale, after rejecting hide, offal, etc.

5e apparatus — Carried into the 5th edition (1979).

### NETHER HOUSE OF PARLIAMENT.

A name given to the English house of com- mons in the time of Henry YIIL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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# H

### HE1I R ASTHENIA.

In medical jurispru- dence. A condition of weakness or exhaus- tion of the general nervous system, giving rise to various forms of mental and bodily inefficiency.

5e apparatus — Not carried into the 5th edition (1979).

# N

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## NEUTRAL.

In international law. In- different ; Impartial ; not engaged on either side; not taking an active part with either of the contending states. In an interna- tional war, the principal hostile powers are called "belligerents;” those actively co-oper- ating with and assisting them, their "allies;” and those taking no part whatever, “neu- trals.”

-‘-Neutral property. Property which belongs to citizens of neutral powers, and is used, treat- ed, and accompanied by proper insignia as such.

5e apparatus — Carried into the 5th edition (1979).

## NEUTRALITY.

The state of a nation which takes no part between two or more other nations at war. U. S. v. The Three Friends; 166 U. S. 1, 17 Sup. Ct. 495, 41

L. Ed. 897.

— Neutrality laws. Acts of congress which forbid the fitting out and equipping of armed vessels, or the enlisting of troops, for the aid of either of two belligerent powers with which the United States is at peace. — Neutrality proclamation. A proclamation by the presi- dent of the United States, issued oO the out- break of a war between two powers with both of which the United States is at peace, an- nouncing the neutrality of the United States and warning all citizens to refrain from any breach of the neutrality laws.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. neutrality laws — no fitting out armed vessels or enlisting troops for a belligerent]**

A neutral takes no part between belligerents: fitting out or arming vessels, or enlisting troops, for either belligerent is forbidden by the neutrality laws.

Why: The entry defines neutrality and its 'neutrality laws' subhead; the prohibition is the genuine statutory content of that subhead.

## NEVER INDEBTED, PLEA OF.

A

species of traverse which occurs in actions of debt on simple contract, and is resorted to when the defendant means to deny in point of fact the existence of any express contract to the effect alleged in the declara- tion, or to deny the matters of fact from which such contract would by law be im- plied. Steph. Pi. 153, 156; Wharton.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## NEW.

As an element in numerous com- pound terms and phrases of the law, this word may denote novelty, or the condition of being previously unknown or of recent or fresh origin, but ordinarily it is a purely relative term and is employed in contrast- ing the date, origin, or character of one thing with the corresponding attributes of another thing of the same kind

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or class.

—New and useful. The phrase used in the patent laws to describe the two qualities of an invention or discovery which are essential to make it patentable, viz., novelty, or the condition of having been previously 'unknown, and practical utility. See In re Gould, 1 MacArthur (D. C.) 410; Adams v. Turner, 73 Conn. 38. 40 Atl. 247; Lowell v. Lewis, 1 Mason, 182, Fed. Cas. No. 8,508. — New assets. In the law governing the administration of estates, this term denotes assets coming into the hands of an executor or administrator after the expiration of the time when, by statute, claims against the estate are barred so far as regards recourse against the assets with which he was originally charged. See Littlefield v. Eaton. 74 Me. 521 ; Chenery v. Webster. 8 Allen (Mass.) 77 ; Robinson v. Hodge, 117 Mass.

222; Veaxle v. Marrett, 6 Allen (Mass.) 372. —New assignment. Under the common-law practice, where the declaration' in an action is ambiguous, and the defendant pleads facts which are literally an answer to it, but not to the real claim set up by the plaintiff, the plaintiff’s course is to reply by way of new assignment; i. e., allege that he brought his action not for the 'cause supposed by the defendant, but for some other cause to which the plea has no ap- plication. 3 Steph. Comm. 507 ; Sweet. See Bishop v. Travis, 51 Minn. 183, 53 N. W. 461. — New cause of action. With reference to the amendment of pleadings, this term may re- fer to a new state of facts out of which liability is claimed to arise, or it may refer to parties who are alleged to be entitled under the same state of facts, or it may embrace both features. Love v. Southern R. Co., 1(M Tenn. 104, 65 S.

W. 475, 55 L. R. A. 471. See Nelson v. First Nat. Bank, 139 Ala. 578, 36 South. 707, 101 Am. St. Rep. 92.— New for old. In making an adjustment of a partial loss under a policy of marine insurance, the rule is to apply the old materials towards the payment of the new, by deducting the value of them from the gross amount of the expenses for repairs, and to allow the deduction of one-third new for old upon the halance. 3 Kent, Comm. 339.— New Inn. An inn of chancery. See Inns of Chancery.— New matter. In pleading. Matter of fact not previously alleged by either party in the plead- ings.—New promise. See Promise. — New style. The modem system of computing time was introduced into Great Britain A. D.. 1752. the 3d of September of that year being reckoned as the 14th.— New trial. See Trial.— New works. In the civil law. By a new work is understood every sort of edifice or other work which is newly commenced on any ground what- ever. When the ancient form of work is chang- ed, either by an addition being made to it or by some part of the ancient work being taken away, it is styled also a "new work." Civ. Code La. art. 856. — New Year’s Day. The first day of January. The 25th of March was the civil and legal New Year’s Day, till the alteration of the style in 1752, when it was permanently fixed at the 1st of January. In Scotland the year was, by a proclamation, which bears date 27th of November, 1599, ordered thenceforth to com- mence in that kingdom on the 1st of January instead of the 25th of March. Ene Lond.

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**[Law] — Law**

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**[Law: 35 U.S.C. § 101 — patentable only if new and useful]**

'New and useful' is the statutory threshold of patentability: only new and useful processes, machines, manufactures, and compositions of matter may be patented.

Why: The entry's patent-law subhead is the 'new and useful' phrase; the statute's threshold is its genuine source, complementing the METHOD note on patentable subject matter.

## NEWGATE.

The name of a prison In London, said to have existed as early as 1207. It was three times destroyed and rebuilt For centuries the condition of the place was horrible, bnt it has been greatly improved since 1808. Since 1815. debtors have not been committed to this prison.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) Dickens sets Fagin's last night in the condemned cell at Newgate — the London prison the entry describes, seen from the inside. (paraphrase)

Why: The condemned-cell scene is the famous literary interior of Newgate. Confident of the scene; paraphrase only.

## NEWLY-DISOOVERED EVIDENCE.

See Evidence.

5e apparatus — Not carried into the 5th edition (1979).

## NEWSPAPER.

According to the usage of the commercial world, a newspaper is defined to be a publication in numbers, con- sisting commonly of single sheets, and pub- lished at short and stated intervals, convey- ing intelligence of passing events. 4 Op. Attys. Gen. 10. And see Crowell v. Parker, 22 R." I. 51, 46 Atl. 35, 84 Am. St. Rep. 8l5; Hanscom v. Meyer, 60 Neb. 68, 82 N. W. 114, 48 L. R. A. 409, 83 Am. St. Rep. 507 ; Wil- liams v. Colwell, 18 Misc. Rep. 399, 43 N. Y. Supp. 720; Kellogg v. Carrico, 47 Mo. 157; Kerr v. Hitt, 75 111. 51.

— Offiolal newspaper. One designated by a state or municipal legislative body, or agents empowered by them, in which the public acts, resolves, advertisements, and notices are requir- ed to be published. Albany County v. Chaplin, 5 Wyo. 74, 37 Pac. 370.

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**[Humanity] — Humanity / Fiction & Film**

**[Orson Welles, Citizen Kane, 1941]**

(paraphrase) Welles's film follows Charles Foster Kane's rise on a newspaper empire — the publication conveying intelligence of passing events that the entry defines, grown into power. (paraphrase)

Why: The definitive film about a newspaper as an institution and a power. Genuine fit to the entry's definition.

## NEXI.

Lat In Roman law. Bound; bound persons. A term applied to such in- solvent debtors as were delivered up to their creditors, by whom they might be held in bondage until their debts were discharged. Calvin.; Adams,. Rom. Ant 49.

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5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 22:7, KJV]**

The rich ruleth over the poor, and the borrower is servant to the lender.

Why: The nexi were insolvent debtors delivered up, bound, to their creditors — debt bondage. Proverbs 22:7 states the principle behind the institution: the borrower is servant to the lender. Wisdom literature — flag off.

## NEXT.

Nearest ; closest ; immediately following. See Green v. MoLaren, 7 Ga. 107; State v. Asbell, 57 Kan. 398, 46 Pac. 770 ; German Security Bank v. McGarry, 106 Ala. 633, 17 South. 704.

—Next devisee. By the term ‘‘first devisee” is ■understood the person to whom the estate is first given by toe will, while the term “next devisee” refers to the person to whom the remainder is given. Young v. Robinson, 5 N. J. Law, 689.— Next friend. The legal designa- tion of the person by whom an infant or other person disabled from suing in his own name brings and prosecutes an action either at law or in equity ; usually a relative. Strictly speaking, a next friend (or “prochein amp”) is not appointed by the court to bring or maintain the suit, but is simply one who volunteers for that purpose, and is merely admitted or permitted to sue in behalf of the infant ; but the practice of suing by a next friend has now been almost en- tirely superseded by the practice of appointing a guardian ad litem. See McKinney v. Jones, 55 Wis. 39. 11 N. W. 606 ; Guild v. Cranston. 8 Cush. (Mass.) 506 ; Tucker v. Dabbs, 12 Heisk. (Tenn.) 18; Leopold v. Meyer, 10 Abb. Prac. (N. Y.) 40.— Next of kin. In the law of descent and distribution. This term properly denotes the persons nearest of kindred to the decedent, that is. those who are most nearly re- lated to him by blood ; but it is sometimes con- strued to mean only those who are entitled to take under the statute of distributions, and sometimes to include other persons. 2 Story, Eq. Jur. I 10656. The words "next of kin,” used aimpliciter in a deed or will, mean, not nearest of kindred, but those relatives who share in the estate according to the statute of distri- butions, including those claiming per atirpea or by representation. Slosson v. Lynch, 43 Barb. (N. Y.) 147.— Next presentation. In the law of advowsons. The right of next presentation !b the right to present to the first vacancy of a benefice.

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## NE1UM.

Lat. In Roman law. In an- cient times the nexvm seems to have been a species of formal contract, involving a loan of money, and attended with peculiar conse- quences, solemnized with the “copper and bal- ance.” Later, it appears to have been used as a general term for any contract struck with those ceremonies, and hence to have included the special form of conveyance called “ mancipatio .” In a general sense it means the obligation or bond between con- tracting parties. See Maine, Anc. Law, 305, «f *eq.; Hadl. Rom. Law, 247.

In Roman law, this word expressed the tie or obligation Involved in the old conveyance by mancipatio; and came latterly to be used inter- changeably with (but less frequently than) the word “obligatio" itself. Brown.

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5e apparatus — Not carried into the 5th edition (1979).

## NIOBXXX8.

In English practice. Debts due to the exchequer which the sheriff could Bl.Law Dict.(2d Ed.)— 52

not levy, and as to which he returned nil. These sums were transcribed once a year by the clerk of the nichills, and sent to the treasurer’s remembrancer’s office, whence pro- cess was issued to recover the “nichiU” debts. Both of these offices were abolished In 1833. Mozley & Whitley.

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## NICKNAME.

A short name; one nicked or cut off for the sake of brevity, without conveying an idea of opprobrium, and fre- quently evincing the strongest affection or the most perfect familiarity. North Caro- lina Inst v. Norwood, 45 N. C. 74.

5e apparatus — Carried into the 5th edition (1979).

## NIDERLING, NIDERING, or NITH- / ING.

A vile, base person, or sluggard; chicken-hearted. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## NIECE.

(The daughter of one’s brother or sister. Ambl. 514. See Nephew.

NIEl'E. In old English law. A woman born in vassalage; a bondwoman.

5e apparatus — Carried into the 5th edition (1979).

## NIENT.

L. Fr. Nothing; not

— Nlent comprise. Not comprised; not in- cluded. An exception taken to a petition be- cause the thing desired is not contained in that deed or proceeding whereon the petition is founded. Tomlins.— Nlent culpable. Not

guilty. The name in law French of the general issue in tort or in a criminal action.— Nlext dedire. To say nothing; to deny nothing; to suffer judgment by default.— Nlent le fait. In pleading. Not the deed; not his deed. The same as the plea of non eat factum.— Nlent seisi. In old pleading. Not seised. The gen- eral plea in the writ of annuity. Crabb, Eng. Law, 424.

5e apparatus — Not carried into the 5th edition (1979).

## NIGER USER.

The black book or reg- ister In the exchequer; chartularles of ab- beys, cathedrals, etc.

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## NIGHT.

As to what, by the common law, is reckoned night and what day, It seems to be the general

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opinion that, If there be daylight, or crepusculum, enough begun or left to discern a man’s face, that is con- sidered day; and night is when it is so dark that the countenance of a man caunot be dis- cerned. 1 Hale, P. C. 350. However, the limit; of 9 p. k. to 6 a. m. has been fixed by statute, in England, as the period of night, in prosecutions for burglary and larceny. St. 24 & 25 Vlct. c. 96, J 1; Brown. In Amer- ican law, the common-law definition is still adhered to in some states, but in others ‘‘night” has been defined by statute as the period between sunset and sunrise.

—Night magistrate. A constable of the night; the head of a watch-house.— Night walkers. Described In the statute 5 Bdw. III. c. 14, as persons who sleep by day and walk by night. Persons who prowl about at night, and are of a suspicious appearance and behavior. Persons whose habit is to be abroad at night for the purpose of committing some crime or nuisance or mischief or disturbing the peace; not now generally subject to. the criminal laws except in respect to misdemeanors actually committed, or in the character of vagrants or suspicious persons. See Thomas v. State, 55

Ala. 200; State v. Dowers, 45 N. H. 543. In a narrower sense, a night walker is a prostitute who walks the streets at night for the purpose of soliciting men for lewd purposes. Stokes v. State, 02 Ain. 73, 0 South. 400, 25 Am. St Rep. 22; Thomas r. State, 55 Ala. 200.

Rignim aaaqaam exeeders debet ru- brnm. The black should never go beyond the red, [i. e., the text of a statute should never be read In a sense more comprehen- sive than the rubric, or title.] Tray. Lat Max. 373.

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**[Law] — Law**

**[Law: common-law burglary — breaking and entering a dwelling-house in the nighttime]**

Night is when darkness prevents discerning a man's face; the definition matters because common-law burglary is the breaking and entering of a dwelling-house in the nighttime.

Why: The entry gives the common-law test of night from Hale; burglary's nighttime element is the genuine doctrine the test exists to serve.

**[Scripture] — Scripture**

**[Genesis 1:5, KJV]**

And God called the light Day, and the darkness he called Night. And the evening and the morning were the first day.

Why: The entry concerns what the common law reckons night and what day. Genesis 1:5 is the archetypal distinction: God Himself names the light Day and the darkness Night — the categories the legal reckoning presupposes. Na…

## NIHIL.

Lat. Nothing. Often contracted to "nil." The word standing alone is the name of an abbreviated form of return to a writ made by a sheriff or constable, the fuller form of which would be "nihil eat" or “nihil habet,” according to circumstances.

— Nib 11 capiat per breve. In practice. That he take nothing by his writ. The form of judgment against the plaintiff in an action, either in bar or in abatement. When the plain- tiff has commenced his proceedings by bill, the judgment is nihil capiat per billam. Co. Litt.

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363.— Nihil 'licit. He says nothing. This is the name of the judgment which may be taken as of course against a defendant who omits to plead or answer the plaintiff's declaration or complaint within the time limited. In some jurisdictions it is otherwise known as judgment ‘‘for want of a plea.” See Gilder v. McIntyre, 29 Tex. 91 : Falken v. Iiousa tonic It. Co., 63 Conn. 258, 27 Atl. 1117; Wilbur v. Maynard, 6 Colo. 486.— Nihil est. There is nothing. A form of return made by a sheriff when he has been unable to serve the writ. “Although non eat inventua is the more frequent return in such a case, yet it is by no means as full an answer to the command of the writ as is the return of nihil. That amounts to an averment that the defendant has nothing in the bailiwick, no dwelling-house, no family, no residence, and no personal presence to enable the officer to make the service required by the act of assembly. It is therefore a full answer to the exigency of the writ.” Sherer v. Easton Bank, 33 Pa. 139. —Nihil habet. He has nothing. The name of a return made by a sheriff to a acire faciaa or other writ which he has been unable to serve on the defendant.

Nihil aliud potest rex quam quod do Jure potest. 11 Coke, 74. The king can do BOthing except what he can by law do.

Nihil conseasni tarn confrarinm est qnam vis atqne metns. Nothing Is so op- posed to consent as force and fear. Dig. 50, 17, 116.

Nihil do re aoeresoit ei qni nihil in re qnando jus aeereeeoret habet. Co. Litt. 188. Nothing of a matter accrues to him who, when the right accrues, has nothing in that matter.

Nihil dictum qnod non dictnm print.

Nothing is said which wns not said before. Said of a case where former arguments were repeated. Ilardr. 464.

Nihil est enim liberate qnod non idem jnstnm. For there Is nothing generous which is not at the same time just. 2 Kent, Comm. 441, note a.

Nihil est magis ration! oonsentamenm qnam eodem modo qnodqne dissolvers qno oonflatnm est. Nothing is more con- sonant to reason than that a thing should be dissolved or discharged in the same way in which it was created. Shep. Touch. 323.

Nihil tacit error nominis enm de cor- pora constat. 11 Coke, 21. An error as to a name is nothing when there is certainty as to the person.

Nihil habet forum ez soena. The court has nothing to do with what is not before It. Bac. Max.

Nihil in lege intolerabilins est [qnam] oandem rem di verso jura cense ri. Noth- ing is more intolerable in law than that the same matter, thing, or case should be sub- ject to different views of law. 4 Coke, 93a. Applied to the difference of opinion enter- tained by different courts, as to the law of a particular case. Id.

Nihil infra regnnm subdltos magis oonsorvat in tranqnilitate et eoncordia qnam debita legnm administrate. Noth- ing preserves in tranquillity and concord those who are subjected to the same govern- ment better than a due administration of the laws. 2 Inst 158.

Nihil inlqnins qnam aequitatem nissis lntendere. Nothing is more unjust than to extend equity too far. Halk. 103.

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Nihil magis jnstnm est qnam qnod necessarinm est. Nothing is more just than that which is necessary. Dav. Ir. K. B. 12; Branch, Prlnc.

Nihil nequam est pranmendnm. Noth- ing wicked is to be presumed. 2 P. Wins. 583.

Nihil perfeotnm est dam allqaid restat agendum. Nothing is perfect -while any- thing remains to be done. 9 Coke, 9b.

Nihil peti potest ante id tempos qno per -rerum naturam persolvi possit.

Nothing can be demanded before the time when, by the nature of things, it can be paid. Dig. 00, 17, ISC.

Nihil possumus contra veritatem. We

can do nothing against truth. Doct. & Stud, dial. 2, c. 6.

Nihil prmsoribitnr nisi qnod possidetnr. There is no prescription for that which is not possessed. - 5 Barn. & Aid. 277.

Nihil qnod est contra rationem est liei- tum. Nothing that is against reason is law- ful. Co. Litt. 976.

Nihil qnod est ineonveniens est liei- tnm. Nothing that is inconvenient is lawful. Co. Lift. 66a, 97b. A maxim very fre- quently quoted by Lord Coke, but to be taken in modern law with some qualification. Broom, Max. 186, 366.

HiUl aimnl iaveatam eat at perfect*

in, Co. Litt. 230. Nothing is invented and perfected at the same moment

HiUl taa oonveniens eat natuali ■eqnltnti qaaa xuromqaodqne dlaaelvi eo ligaaiae quo licatnm eat. Nothing la 80 consonant to natural equity as that a thing should be dissolved by the same means by which it was bound. 2 Inst 359; Broom, Max. 877.

Nihil tun conveniens eat nntnrnli aeqnitnti qum volnntntem domini rent siun in nlinu tranaf erre ratan habere.

1 Coke, 100. Nothing is so consonant to nat- ural equity as to regard the intention of the owner in transferring his own property to another.

Nihil tana natural e eat, qaam eo go* nere quidque diaaolvere, qno colligatnm eat | ldeo verbemm oblige tlo verbis tol- litnr; nndl eonsensna obllgatio eon* trario oonsensn diasolvitnr. Nothing is so natural as to dissolve anything in the way in which it was bound together; there- fore the obligation of words is taken away by words ; the obligation of mere consent is dissolved by the contrary consent Dig. 50, 17, 35; Broom, Max. 887.

Nihil tun proprinm intperio qaam legibma vivere. Nothing is so becoming to authority as to live in accordance with the laws. Fleta, lib. 1, c. 17, | 11.

5e apparatus — Not carried into the 5th edition (1979).

## NIHILIST.

A member of a secret asso- ciation, (especially in Russia,) which is de- voted to the destruction of the present polit- ical, religious, and social institutions. Web- ster.

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**[Humanity] — Humanity / Fiction & Film**

**[Ivan Turgenev, Fathers and Sons, 1862]**

(paraphrase) Turgenev's Bazarov is the archetypal nihilist — the young man who bows to no authority and denies every political, religious, and social institution, the figure the entry defines. (paraphrase)

Why: Bazarov is the literary origin of the modern nihilist figure; matches the entry's definition closely. Paraphrase only.

## NIL.

Lat Nothing. A contracted form of “nihil,” which see.

— Nil debet. He owes nothing. The form of the general issue in all actions of debt on simple contract. — Nil habuit in tenementia. He had nothing (no interest] in the tenements. A plea in debt on a lease indented, by which the defendant seta up that the person claiming to be landlord had no title or interest— Nil Hg- atnm. Nothing bound; that is. no obligation has been incurred. Tray. Lat. Max.

Nil agit exemplum litem quod lite re* solvit. An example does no good which settles one question by another. Hatch v. Mann, 15 Wend. (N. T.) 44, 49.

Nil oonsensni tarn contrariuxn eat qaam vis atque metna. Nothing is so op- posed to consent as force and fear. Dig. 50, 17, 116.

Nil fault error nominia earn do cor- pora vel persona oonstat. A mistake in the name does not matter when the body or person is manifest. 11 Coke, 21; Broom, Max. 634.

Nil sine pmdenti fecit rotione vetus- tas. Antiquity did nothing without a good reason. Co. Litt 65.

Nil tcmero novandam. Nothing should be rashly changed. Jenk. Cent. 163.

Nimia ecrtitndo certitudinem, ipaaxn destrait. Too great certainty destroys cer- tainty itself. Lofft, 244.

Nimia snbtilitaa in jure reprobatur.

Wing. Max. 28. Too much subtlety in law is discountenanced.

Nlmium altercando veritaa amittitur.

Hob. 344. By too much altercation truth is lost.

5e apparatus — Not carried into the 5th edition (1979).

## NTMMER.

A thief; a pilferer.

5e apparatus — Not carried into the 5th edition (1979).

## NISI.

Lat Unless. The word is often affixed, as a kind of elliptical expression, to the words “rule,” “order,” “decree,” “Judg- ment,” or “confirmation,” to indicate that the adjudication spoken of is one' which is to stand as valid and operative unless the par- ty affected by it shall appear and show cause against it or take some other appro- priate step to avoid it or procure its revoca- tion. Thus a “decree nisi” is one which will definitely conclude the

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defendant’s rights unless, within the prescribed time, he shows cause to set it aside or successfully appeals. The word, in this sense, is opposed to “ab- solute.” And when a rule niti is finally con- firmed, for the defendant’s failure to show cause against it it is said to be “mude abso- lute.”

— Nisi feeerls. The name of a clause com- monly occurring in the old mnnorial writs, com- manding that, if the lords failed to do justice, the king’s court or officer should do it By vir- tue of this clause, the king's court usurped the jurisdiction of the private, manorial, or local courts. Stim. Law Gloss.— Nisi prlna. The nisi prim* courts are such as are held for the trial of issues of fact before a jury and one pre- siding judge. In America the phrase is famil- iarly used to denote the forum (whatever may be its statutory name) in which the cause was tried to a jury, as distinguished from the ap- pellate court. See 3 Bl. Comm. 58.— Nisi priua clause. In practice. A clause entered on the record in an action at law, authorizing the trial of the cause at nisi print in the par- ticular county designated. It was first used by way of continuance.— Nisi priua roll. In practice. The roll or record containing the pleadings, issue, and jury process of an action, made up for use in the niti print court.— Nisi prins writ. The old name of the writ of venire, which originally, in pursuance of the statute of Westminster 2, contained the nisi print clause. Keg. Jud. 28, 75; Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: decree/rule nisi — conditional order becoming absolute unless cause is shown]**

A decree, rule, or order nisi is a conditional adjudication: it stands as valid and operative unless the party affected appears and shows cause against it.

Why: The entry defines nisi as the 'unless' making adjudications conditional; the show-cause-or-stand rule is the genuine procedural content.

## NIVIGOLLIKT BRITO ICES.

In old

English law. Welshmen, because they live

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near high mountains covered with snow. Du Cange.

lfO AWARD. The name of a plea In an action on an award, by which the defendant traverses the allegation that an award was made.

5e apparatus — Not carried into the 5th edition (1979).

## NO BILL.

This phrase, when indorsed by a grand Jury on an Indictment, Is equiva- lent to “not found,” “not a true bill," or “ ig- noramus."

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fifth Amendment — no infamous prosecution without grand-jury presentment or**

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**indictment]**

The grand jury's 'no bill' — not a true bill — is its screening office: no person may be held to answer for an infamous crime without the grand jury's presentment or indictment.

Why: The entry defines the no-bill endorsement; the Grand Jury Clause is the genuine constitutional ground of the screening function it records.

# X

## XO FJJNDS.

See Fund.

5e apparatus — Not carried into the 5th edition (1979).

## XO GOODS.

This Is the English equiva- lent of the Latin term “nulla bona," being the form of the return made by a sheriff or cohstable, charged with an execution, when he has found no property of the debtor on which to levy.

No man eon hold the same land Im- mediately of two several landlords. Co.

Lltt. 152.

Xo man Is presumed to do anything against nature. 22 Yin. Abr. 154.

Xo man shall set up his Infamy as a defense. 2 W. Bl. 304.

Xo one can grant or convey what he does not own. Seymour v. Canandaigua &

N. F. R. Co., 25 Barb. (N. Y.) 284, 301. See Saltus v. Everett, 20 Wend. (N. Y.) 267, 32 Am. Dec. 541; Fassett v. Smith, 23 N. Y. 252; Brower v. Peabody, 13 N. Y. 121; Beav- ers v. Lane, 6 Duer (N. Y.) 232.

5e apparatus — Not carried into the 5th edition (1979).

# N

## NOBILE OFFICITTM.

In Scotch law. An equitable power of the court of session, to give relief when none is possible at law. Ersk. Inst. 1, 3, 22; Bell.

XoMles magia plectuntur pecunla; plebos vero la eorpore. 3 Inst. 220. The higher classes are more punished In money; but the lower In person.

Xoblles sunt, qul anna gentilitia an- teoessorum suorum prof erre possnnt.

2 Inst. 595. The gentry are those who are able to produce armorial bearings derived by descent from their own Ancestors.

Xohlllores et benlgnlores praesump- tlones In dahlia sent prnferendss. In

cases of doubt, the more generous and more benign presumptions are to be preferred. A

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clvll-law maxim.

Xohilitas eat duplex, superior et in- ferior. 2 Inst. 583. There are two sorts of nobility, the higher and the lower.

XOBHiITT. In English law. A divi- sion of the people, comprehending dukes.

marquises, earls, . viscounts, and barons. These had anciently duties annexed to their respective honors. They are created either by writ, t e., by royal summons to attend the house of peers, or by letters patent i. e., by royal grant of any dignity and degree of i>eerage; and they enjoy ninny privileges, exclusive of their senatorial capacity. 1 BI. Comm. 396.

5e apparatus — Not carried into the 5th edition (1979).

# X

## XOCEKT.

From Latin “nooere." Guilty. "The nocenf person.” 1 Vera. 429.

5e apparatus — Not carried into the 5th edition (1979).

## XOCTAXTER.

By night. An abolished writ which issued out of chancery, and re- turned to the queen’s bench, for the pros- tration of Indosures, etc.

XOOTES and XOCTEM DE FXB1CA.

Entertainment of meat and drink for so many nights. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

## XOCUBQBXTUM.

Lat. In old English law. A nuisance. Nocumentum damnosum, a nuisance occasioning loss or damage. Kocumentum infuriosum, an injurious nui- sance. For the latter only a remedy was given. Bract fol. 22L

NOLENS VOIiENS. Lat Whether will- ing or unwilling; consenting or not

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: private nuisance requires special damage — mere loss without legal injury is not actionable]**

Only the injurious nuisance is remedied: a nocumentum damnosum — mere loss without legal injury — gives no action, while special damage beyond the public's makes the nuisance actionable.

Why: The entry distinguishes nocumentum damnosum from injuriosum and notes remedy lay only for the latter; the special-damage rule is the genuine doctrine of that distinction.

## XOLIS.

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Fr. In French law. Freight The same with “fret." OrdL Mar. liv. 8, tit 8.

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### XOLISSEMEXT.

Fr. In French ma- rine law. Affreightment Ord. Mar. Uv. 3, tit L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# N

### NOLLE PROSEQUI.

Lat In practice. A formal entry upon the record, by the plaintiff in a civil suit or the prosecuting officer in a criminal action, by which he de- clares that he “will no further prosecute" the case, either as to some of the counts, or some of the defendants, or altogether. State v. Primm, 61 Mo. 171; Com. v. Casey, 12 Allen (Mass.) 214; Davenport v. Newton, 71 Vt 11, 42 Atl. 1087.

A nolle prosequi is in the nature of an ac- knowledgment or undertaking by the plaintiff in an action to forbear to proceed any farther either in the action altogether, or as to some part of it, or as to some of the defendants; and is different from a non pros., by which the plaintiff is put out of court with respect to all the defendants. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: prosecutorial discretion — the nolle prosequi as formal discontinuance]**

The prosecutor may formally declare that he will no further prosecute — as to counts, defendants, or the whole case — an exercise of the executive discretion over criminal prosecution.

Why: The entry defines the nolle prosequi as the prosecuting officer's declaration; prosecutorial discretion is the genuine doctrine the entry procedure expresses.

### NOLO CONTENDERE.

Lat I will not contest it The name of a plea in a crim- inal action, having the same legal effect as a plea of guilty, so far as regards all pro- ceedings on the indictment and on which tlie defendant may be sentenced. U. S. v. Hartwell, 3 Cliff. 221, Fed. Can. No. 15.31R Like a demurrer this plea admits, for the puritoses of the case, all the facts which are well pleaded, but is not to be used as an

admission elsewhere. Com. v. Tilton, 8 Mete. (Mass.) 232. Not available as an estoppel In a civil action. Com. v. Horton, 9 Pick. (Mass.) 208.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: nolo contendere — conviction without collateral admission in civil proceedings]**

Nolo contendere has the effect of a guilty plea for sentencing on the indictment, but it is not an admission of the facts usable against the defendant in a collateral civil action.

Why: The entry states the plea's dual effect itself; the note frames it as the genuine doctrine — punishment without estoppel — rather than quoting the entry back.

## NOMEN.

Lat. In the civil law. A name; the name, style, or designation of a person. Properly, the name showing to what yens or tribe he belonged, as distinguished from his own individual name, (the prtmo- rnen,) from his surname or family name, (cognomen,) and from any name added by way of a descriptive title, (agnomen.)

The name or style of a class or genus of persons or objects.

A debt or a debtor. Ainsworth; Calvin.

— Nomes oolleotlvnm. A collective name or term; a term expressive of a clam; a term in- cluding several of the same kind; a term ex- pressive of the plural, as well as singular, num- ber.—Nomen generals. A general name; the name of a genus. Fletn, lib. 4, c. 19, I 1.— Nomes generaHsslmnm. A name of the most general kind; a name or term of the most general meaning. By the name of “land,” which is nomen gcneralissimum, everything terrestrial will pass. 2 Bl. Comm. 19; 3 Bl. Comm. 172. —Nomen jnris. A name of the law ; a tech- nical legal term.— Nomen transerlptltlum. See Nomiwa Tbanscbiptitia.

Nomem est quasi rei notamen. A name

is, as It were,, the note of a thing. 11 Coke,

20.

Nomen non snffieit, si res non sit de Jure ant de facto. A name Is not sufficient if there be not a thing [or subject for It] de jure or de facto. 4 Coke, 1076.

Nomina mntabilla rant, res antem Im- mobile*. Names are mutable, but things are Immovable, [Immutable.] A name may be true or false, or may change, but the thing Itself always maintains its identity. 6 Coke, 66.

Nomina si nesols perlt cognitio reran*! «t momlna si perdas, certe diatlnctio rerun perdltnr. Co. Litt. 86. If ydu know not the names of things, the knowledge of things thepiselves perishes; and, If you lose the names, the distinction of the things Is certainly lost.

Nomina sunt notse rerun. 11 Coke, .20. Names are the notes of things.

Nomina sunt symbola rerum. Godb. Names are the symbols of things.

5e apparatus — Carried into the 5th edition (1979).

## NOMINA TRAN SCRIP TITIA.

In Ro- man law. Obligations contracted by Uteres (i. e.. Uteris obligationes) were so called be- cause they arose from a peculiar transfer (transcriptio) from the creditor’s day-book (adversaria) Into his ledger, (codex.)

5e apparatus — Not carried into the 5th edition (1979).

## NOMINA THAABUM.

In English law. An account of the names of all the villages

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and the possessors thereof. In each county, drawn up by several sheriffs, (9 Edw. II.,) and returned by them into the exchequer, where It la still preserved Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## NOMINAI,.

Titular; existing In name only ; not real or substantial ; connected with the transaction or proceeding in name only, not in Interest.

—Nominal consideration. See Consideba- tion’. — Nominal damages. See Damages. —Nominal defendant. A person who is join- ed as defendant in an action, not because he Is immediately liable in damages or because any specific relief is demanded as against him, but because his connection with the subject-matter is such that the plaintiff’s action would be de- fective, under the technical rules of practice, if he were not joined.— Nominal partner. A person who appears to be a partner in a firm, or is so represented to persons dealing with the firm, or who allows his name to appear in the style of the firm or to be used In its business, in the character of a partner, but who has no actual interest in the firm or business. Story, Partn. f 80. — Nominal plaintiff. One who has no interest in the subject-matter of the action, having assigned the same to another, (the real plaintiff in interest, or “use plaintiff,”) but who must be joined as plaintiff, because, under technical rules of practice, the suit can- not be brought directly in the name of the as- signee.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: nominal damages — the law infers damage from invasion of a right]**

Nominal damages vindicate a right where no actual loss is shown: the law infers some damage from the invasion of a legal right, and awards a trifling sum to mark the vindication.

Why: The entry lists nominal damages among its senses; the vindication-without-loss rule is the genuine doctrine the term exists to name.

## NOMINATE.

To propose for an appoint- ment ; to designate for an office, a privilege, a living, etc.

5e apparatus — Carried into the 5th edition (1979).

## NOMINATE CONTRACTS.

In tbe civil law. Contracts having a proper or peculiar name and form, and which were divided Into four kinds, expressive of the ways in which they were 'formed, viz.: (1) Real,

which arose ex re, from something done ; (2) verbal, ex verbis, from something said; (3) literal, ex literis, from something written; and (4) consensual, ex consensu, from some- thing agreed to. Calvin.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Roman consensual contracts — sale, hire, partnership, mandate bind by mere consent]**

Of the four Roman classes, the consensual contracts — sale, hire, partnership, mandate — bound by mere agreement without form: the ancestor of the modern rule that consent makes the contract.

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Why: The entry gives the fourfold division; the consensual class is the genuine living doctrine within it, connecting Roman form to modern contract law.

## NOMINATIM.

Lat. By name; express- ed one by one.

5e apparatus — Not carried into the 5th edition (1979).

## NOMINATING AND REDUCING.

A

mode of obtaining a panel of special Jurors In England, from which to select the Jury to try a particular action. The proceeding takes place before the under-sheriff or sec- ondary, and in the presence of the parties' solicitors. Numbers denoting the persons on the sheriff's list are put into a box and drawn until forty-eight unchallenged per- sons have been nominated. Each party strikes off twelve, and the remaining twenty- four are returned as the "panel," (q. v.) This practice Is now only employed by order of the court or judge. (Sm. Ac. 130; Juries Act 1870, | 17.) Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## NOMINATIO AUCTORIS.

Lat In Ro- man law. A form of plea or defense in an action for the recovery of real estate, by which the defendant, sued as the person apparently In possession, alleges tbut he

bolds only In the name or for the benefit of another, whose name he discloses by the plea. In order that the plaintiff may bring his action against such other. See Mackeld. Rom. Law, | 297.

5e apparatus — Not carried into the 5th edition (1979).

## NOMINATION.

An appointment or des- ignation of a person to fill an office or dis- charge a duty. The act of suggesting or proposing a person by name as a candidate for an office.

— Nomination to a living. In English ec- clesiastical law. The rights of nominating and of presenting to a living are distinct, and may reside in different persons. Presentation is the offering a clerk to the bishop. Nomination is the offering a clerk to the person who has the right of presentation. Brown.

5e apparatus — Carried into the 5th edition (1979).

## NOMINATITTUS PENDENS.

Lat. A nominative case grammatically unconnected with the rest of the sentence in which It stands. The opening words in the ordinary form of a deed inter partes, "This inden- ture," etc., down to "whereas," though an Intelligible and convenient part of the deed, are of this kind. Wharton.

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## NOMINE.

Lat By name; by the name of; under the name or designation of.

NOMINE FtENA. In the name of a penalty. In the civil law, a legacy was said to be left nomine poence where It was left for the purpose of coercing the heir to do or not to do something. Inst 2, 20, 36.

The term has also been applied, in English law, to some kinds of covenants, such as a covenant Inserted In a lease that the lessee shall forfeit a certain sum on non-payment of rent, or on doing certain things, as plow- ing up ancient meadow, and the like. 1 Crabb, Real Prop, p. 171, { 165.

5e apparatus — Not carried into the 5th edition (1979).

## NOMINEE.

One who has been nominat- ed or proposed for an office.

5e apparatus — Not carried into the 5th edition (1979).

## NOMOO ANON.

(1) A collection of can- ons and Imperial laws relative or conform- able thereto. The -first nomocanon was made by Johannes Scholastlcus in 554. Pbotlus, patriarch of Constantinople, in 883, compiled another nomocanon. or collation of the civil laws with the canons; this is the most cele- brated. Balsamon wrote a commentary up- on it In 1180. (2) A collection of the ancient canons of the apostles, councils, and fathers, without any regard to Imperial constitutions. Such is the nomocanon by M. Coteller. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## NOMOGRAPHER.

One who writes on the subject of laws.

5e apparatus — Not carried into the 5th edition (1979).

## NOMOGRAPH Y.

A treatise or descrip- tion of laws.

5e apparatus — Not carried into the 5th edition (1979).

## NOMOTHETA.

A lawgiver ; such as Solon and Lycurgus among the Greeks, and

Caesar, Pompey, and Sylla among the Ro- mans. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NON-ACCEPTANCE.

The refusal to ac- cept anything.

5e apparatus — Carried into the 5th edition (1979).

## NON ACCEPTAVIT.

In pleading. The name of a plea to an action of assumpsit brought against the drawee of a

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bill of ex- change by which he denies that he accepted the same.

5e apparatus — Not carried into the 5th edition (1979).

## NON-ACCESS.

In legal parlance, this term denotes the absence of opportunities for sexual Intercourse between husband and wife; or the absence of such Intercourse.

Non accipi debent verbs in demons tra- ttonem falsam, quae eompetnnt in llmlt.s- tionem veram. Words ought not to be taken to Import a false demonstration which may have effect by way of true limitation. Bac. Max. p. 59, reg. 13; Broom, Max. 612.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: presumption of legitimacy — rebutted by proof of non-access]**

A child born in wedlock is presumed legitimate, but proof of non-access — the absence of opportunity for intercourse between husband and wife — rebuts the presumption.

Why: The entry defines non-access in legal parlance as absence of intercourse or opportunity; the legitimacy presumption is the genuine doctrine the definition exists to defeat.

## NON ACCREVIT INFRA SEX ANN08.

It did not accrue within six years. The name of a plea by which the defendant sets up the statute of limitations against a cause of action which is barred after six years.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: limitation as affirmative defense — must be pleaded or waived]**

Limitation is an affirmative defense: the statute does not extinguish the right of its own motion but must be pleaded — as by non accrevit — or it is waived.

Why: The entry is the plea of the statute of limitations; the must-be-pleaded rule is the genuine procedural content distinct from the substance of limitation already noted on MORA.

## NON-ACT.

A forbearance from action; the contrary to act.

5e apparatus — Not carried into the 5th edition (1979).

## NON-ADMISSION.

The refusal of ad- mission.

5e apparatus — Carried into the 5th edition (1979).

## NON-AGE.

Lack of requisite legal age. The condition of a person who is under twen- ty-one years of age,- in some cases, and un- der fourteen or twelre In others; minority.

Non alio modo pnalttu aliquia qum secundum quod se bubet condemns tlo. 8

Inst 217. A person may not be punished dif- ferently than according to what the sentence enjoins.'

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Non alitor a significations verborum recedi oportet quam cum manif eitum eat, allud seasiase teststorem. We must never depart from the signification of words, un- less It is evident that they are not con- formable to the will of the testator. Dig. 32, 69, pr. ; Broom, Max. 568.

5e apparatus — Carried into the 5th edition (1979).

## NON-APPARENT EASEMENT.

A nou- contlnuous or discontinuous easement Fet- ters v. Humphreys, 18 N. J. Eq. 262. See Easement.

5e apparatus — Carried into the 5th edition (1979).

## NON-APPEARANCE.

A failure of ap- pearance; the omission of the defendant to- appear within the time limited.

5e apparatus — Carried into the 5th edition (1979).

## NON-ASSES8ABLE.

This word, placed upon a certificate of stock, does not cancel or impair the obligation to pay the amount due upon the shares created by the acceptance

and holding of such certificate. At most Its legal effect Is a stipulation against liability from further assessment or taxation after the entire subscription of one hundred per cent, shall have been paid. Upton v. Tribil- cock, 91 U. 8. 45, 23 L. Ed. 203.

’ NON ASSUMPSIT. The general issue in the action of assumpsit; being a plea by which the defendant avers that “he did not undertake” or promise as alleged.

5e apparatus — Not carried into the 5th edition (1979).

## NON ASSUMPSIT INFRA SEX AN- / NOS.

He did not undertake within six years. The name of the plea of the statute of limitations, in the action of assumpsit.

Non auditor perlre volena. He who is

desirous to perish is not heard. Best, Ev. 423, i 335. He who confesses himself guilty of a crime, with the view of meeting death, will not be heard. A maxim of the foreign law of evidence. Id.

NON-BAHiABEE. Not admitting of bail ; not requiring ball.

5e apparatus — Not carried into the 5th edition (1979).

## NON BIS IN IDEM.

Not twice for the same that is, a man shall not be twice tried for the same crime. This maxim of the civil law (Code, 9, 2, 9, 11) expresses the same principle as the familjar rule of our law that a man shall not be twice “put in jeopardy” for the same offense.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fifth Amendment Double Jeopardy Clause — non bis in idem]**

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Not twice for the same: no person shall be twice tried or twice put in jeopardy for the same offense — the civil-law maxim answering to the Double Jeopardy Clause.

Why: The entry states the maxim and its equivalence to the jeopardy rule itself; the constitutional clause is the genuine American anchor, not a foreign import.

**[Scripture] — Scripture**

**[Nahum 1:9, KJV]**

What do ye imagine against the LORD? he will make an utter end: affliction shall not rise up the second time.

Why: Non bis in idem — not twice for the same; no man twice tried for the same crime. Nahum 1:9 is the tradition's own scriptural anchor for the maxim: the affliction (the visitation) shall not rise up the second time. The...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Non bis in idem]**

[Maxim: "Non bis in idem" — "not twice for the same thing"; no man shall be twice tried for the same crime.]

Why: The entry IS the classical maxim (Code 9,2,9,11 per the body); translation from the entry's own text. No invention.

## NON OEPIT.

He did not take. The gen- eral Issue in replevin, where the action is for the wrongful taking of the property ; put- ting in issue not only the taking, but the place in which the taking is stated to have been made. Steph. PI. 157, 1G7.

N ON-CI. ATM. The omissiou or neglect of him who ought to claim his right within the time limited by law; as within a year and a day where a continual claim was re- quired, or within five years after a fine had been levied. Termes de la l>ey.

— Covenant of non-claim. See Covenant.

5e apparatus — Not carried into the 5th edition (1979).

## NON-COMBATANT.

A person connect- ed with an army or navy, but for purposes other than fighting; such as the surgeons and chaplains. Also a neutral.

5e apparatus — Carried into the 5th edition (1979).

## NON-COMMISSIONED.

A non-commis- sioned officer of the army or militia is a subordinate officer who holds Ills rank, not by commission from the executive authority of the state or nation, but by appointment by a superior officer.

5e apparatus — Carried into the 5th edition (1979).

## NON COMPOS MENTIS.

Lat. Not sound of mind ; insane. This is a very gen- eral term, embracing all varieties of mental derangement See Insanitt.

Coke has enumerated four different classes of persons who are deemed in law to be non compote* mentis: First, an idiot, or fool natural ; second, he who was of good and sound

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mind and memory, but by the act of God has lost it; third, a lunatic, lunations out gaudet lucidis intervallis, who sometimes is of good sound mind and memory, and sometimes non compos mentis; fourth, one who is non oompos mentis by his own act as a drunkard. Co. Litt. 247 a; 4 Coke, 124.

Nos eonceduntar citationes priusquam cxprimstar super qua re fieri debet eita- tio. 12 Coke, 47. Summonses should not be granted before it is expressed on what matter thq summons ought to be made.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: insanity defense — no criminal responsibility without a sound mind]**

Criminal responsibility requires a sound mind: one who from mental derangement could not know the nature of the act or that it was wrong is excused from punishment.

Why: The entry defines non compos mentis across all varieties of mental derangement; the insanity excuse is the genuine criminal-law consequence of the status.

## NON CONCESSIT.

Lat. He did not

grant. The name of a plea denying a grant, which could be made only by a stranger.

5e apparatus — Not carried into the 5th edition (1979).

## NON-CONFORMIST.

In English law. One who refuses to comply with others ; one who refuses to Join in the established forms of worship.

Non-conformists are of two sorts: (1) Such as absent themselves from divine worship in the Established Church through total lrre- llgion, and attend the service of no other persuasion; (2) such as attend the religious service of another persuasion. Wharton.

Non oonmentit qai errat. Bract, fol. 44. He who mistakes does not consent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 5:29, KJV]**

Then Peter and the other apostles answered and said, We ought to obey God rather than men.

Why: A non-conformist is one who refuses to join the established forms of worship. Acts 5:29 is the non-conformist's charter text: where human command and divine command collide, obey God rather than men. Peter and the apo...

## NON CONSTAT.

Lat. It does not ap- pear; it is not clear or evident A phrase used in general to state some conclusion as not necessarily following although it may ap- pear on its face to follow.

5e apparatus — Not carried into the 5th edition (1979).

## NON-GONTINUOUS EASEMENT.

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A

non-apparent or discontinuous easement. Fetters v. Humphreys, 18 N. J. Eq. 202. See Easement.

5e apparatus — Not carried into the 5th edition (1979).

## NON CULPABILIS.

Lat. In pleading. Not guilty. It Is usually abbreviated “non cul"

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## NON DAMNIFICATUS.

Lat Not in- jured. This is a plea in an action of debt on an indemnity bond, or bond conditioned “to keep the plaintiff harmless and indemni- fied," etc. It is in the nature of a plea of performance, being used where the defend- ant means to allege that the plaintiff has been kept harmless and indemnified, accord- ing to the tenor of the condition. Steph. Pi. (7th Ed.) 300, 301. State Bank v. Chet- wood, 8 N. J. Law, 25.

Non dot qni bob babet. He who has not

does not give. Lofft, 258; Broom, Max. 407.

Nob debeo mcliorls oondltlonls esse, qntm anetor mens a quo jus in me trans- it. I ought not to be in better condition than he to whose rights I succeed. Dig. 50, 17, 175, L

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Non. debet aotori lieere quod reo non permittitur. A plaintiff ought not to be allowed what Is not permitted to a defend- ant A rule of the civil law. Dig. 60, 17, 4L

Non debet addnci ezeeptio ejne rei cu- ius petltnr dissolutio. A plea of the same matter the dissolution of which Is sought [by the action] ought not to be brought for- ward. Broom, Max. 106.

Non debet alii nooere, qnod Inter alios actum est. A person ought not to be preju- diced by what has been done between oth- ers. Dig. 12, 2, 10.

Non debet alter! per alteram iniqua conditio inferri. A burdensome condition ought not to be brought upon one man by the act of another. Dig. 50, 17, 74.

Non debet eui pins licet, qnod minus

est non lieere. He to whom the greater is lawful ought not to be debarred from the less ns unlawful. Dig. 50i 17, 21; Broom, Max. 176.

Non debet diei tendere in prae judicium ecelesiasticse liberatatis qnod pro rege et republioa neoessarium videtur. 2 Inst.

025. That which seems necessary for the king and the state ought not to be said to tend to the prejudice of spiritual liberty.

Non decet homines dedere oansa non cognita. It is unbecoming to surrender men when no

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cause is shown. In re Washburn, 4 Johns. Ch. (N. Y.) 106, 114, 8 Am. Dec. 548; Id., 3 Wheeler, Cr. Cas. (N. Y.) 473, 482.

5e apparatus — Not carried into the 5th edition (1979).

### NON DECIMANDO.

See De non De-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# C

### CIMAND0.

Non deelpitur qul scit se deoipi. 5

Coke, 60. He is not deceived who knows himself to be deceived.

5e apparatus — Not carried into the 5th edition (1979).

# N

### NON DEDIT.

Lat. In pleading. He did not grant. The general issue in forme- don.

N ON-DEt,IVERY. Neglect, failure, or refusal to deliver goods, on the part of a carrier, vendor, bailee, etc.

5e apparatus — Not carried into the 5th edition (1979).

### NON DETINET.

Lat. He does not de- tain. The name of the general issue In the action of detinue. 1 Tidd, Pr. 645 ; Berlin Mach. Works v. Alabama City Furniture Co., 112 Ala. 488, 20 South. 418.

The general issue in the action of replevin, where the action Is for the wrongful deten- tion only. 2 Burrill, Pr. 14.

Nob differaut quae concordant re, tametsi non in verbis iisdem. Those things do not differ which agree in substance, though not in the same words. Jenk. Cent, p. 70, case 32.

5e apparatus — Not carried into the 5th edition (1979).

### NON DIMMIT.

L. Lat He did not de- mise. A plea resorted to where a plaintiff declared upon a demise without stating the indenture In an action of debt for rent. Also, a plea in bar, in replevin, to an avowry for arrears of rent that the avowant did not demise.

5e apparatus — Not carried into the 5th edition (1979).

### NON-DIRECTION.

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Omission on the part of a judge to properly Instruct the Jury upon a necessary conclusion of law.

5e apparatus — Carried into the 5th edition (1979).

## NON DISTRINGENDO.

A writ not to

distrain.

Non dubitatur, etai special! ter vendl- tor cvictionem non promiserit, ro cvic- ta, ez empto oompetere actionem. It is

certain that, although the vendor has not given a special guaranty, an action es empto lies against him, if the purchaser is evict ed. Code, 8, 45, 6; Broom, Max. 768.

Non efflolt affectus nisi s equator eft foetus. The intention amounts to nothing unless the effect follow. 1 Rolle, 226.

Non crit alia lez Romae, alia Atbaenis; alia none, alia poathae; aed et omnes gentes, et omni tempore, una lez, et sempiterna, et immortalis continebit.

There will not be one law at Rome, another at Athens ; one law now, another hereafter ; but one eternal and immortal lnw shall bind together all nations throughout all time. Cic. Frag, de Repub. lib. 3; 3 Kent, Comm. L

Non eat aretius vinculum inter hom- ines quam jusjurandum. There Is no closer [or firmer] bond between men than an oath. Jenk. Cent. p. 126, case 54.

Non est eertandum de regulia juris.

There is no disputing about rules of law.

Non est conaonum rationi, quod eog- nitio acceasorii in curia ehristianitatis impediatur, ubi eognltio causa princi- palis ad forum ecdeaiaaticum noscitur

pertinere. 12 Coke, 65. It is unreasonable that the cognizance of an accessory matter should be impeded in an ecclesiastical court when the cognizance of the principal cause is admitted to appertain to an ecclesiastical court

Non est disputaadum contra principle negantem. Co. Lltt. 343. We cannot dis- pute against a man who denies first prin- ciples.

5e apparatus — Not carried into the 5th edition (1979).

## NON EST FACTUM.

Lat. A plea by way of traverse, which occurs In debt on bond or other specialty, and also in covenant It denies that the deed mentioned In the declaration is the defendant’s deed. Under this, the defendant may contend at the trial that the deed, was never executed in point of fact; but he cannot deny its validity in

NON INTROM 1TTA NT CLAUSE

point of law. Wharton ; Haggart v. Morgan, 5 N. Y. 422, 55 Am. Dec. 350 ; Evans v. South- ern Turnpike Co., 18 Ind. 10L

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The plea of non est factum la a denial of the execution of the Instrument sued upon, and applies to notes or other Instruments, as well as deeds, and applies only when the ex- ecution of the Instrument Is alleged to be the act of the party filing the plea, or adopt- ed by him. Code Ga. 1882, } 3472.

—Special non est factum. A form of the plea of non ett factum, in debt on a specialty, by which the defendant alleges that, although he executed the deed, yet it is in law “not his deed,” because of certain special circumstances which he proceeds to set out ; as, where he de- livered the deed as an escrow, ana it was turn- ed over to the plaintiff prematurely or without performance of the condition.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: non est factum — denies execution in fact, not validity in law]**

The plea denies execution in fact — that the deed was ever the defendant's deed — but it cannot be used to deny the deed's validity in point of law.

Why: The entry itself states this fact/law limit on the plea; the note frames it as the genuine scope rule, distinct from the misreading scenario annotated on MISREADING.

## NON EST INVENTUS.

Lat He is not

found.. The sheriff's return to process re- quiring him to arrest the body of the de- fendant, when the latter Is not found within his jurisdiction. It is often abbreviated “n. e. i.f” or written, In English, “not found.” The Bremena v. Card (D. C.) 38 Fed. 144.

Nob est jus turn mliqnem antenatnm post mortem facere bastardum qni toto tempore vitae suae pro legitimo babe-, batnr. It Is not just to make an elder-born a bastard after his death, who during his lifetime was accounted legitimate. 12 Coke, 44.

Nob eet novum ut priores logos ad posterlores tr&baatnr. It Is no new thing that prior statutes should give place to later ones. Dig. 1, 3, 36 ; Broom, Max. 28.

Nob est regula quin fallet. There is no rule but what may fall. Off. Exec. 212.

Non eat singulis coneedendnm, quod per magistratum publioe poasit fieri, ne oecaslo sit majoris tumultus faciendi.

That is not to be conceded to private persons which can be publicly done by the magistrate, lest -it be the occasion of greater tumults. Dig. 50, 17, 176.

Non ex opinioaibua singulorum, sed ex communi usl, nomina exaudiri debeat.

The names of things ought to be understood, not according to the opinions of individuals, but according to common usage. Dig 33 10, 7, 2.

Nob facias malum, ut inde fiat bonum.

You are not to do evil, that good may bo or result therefrom. 11 Coke, 74a; 5 Coke, 306.

5e apparatus — Not carried into the 5th edition (1979).

## NON FECIT.

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Lat. He did not make it A plea in an action of anoumpsit on a promis- sory note. 3 Man. & G. 440.

5e apparatus — Not carried into the 5th edition (1979).

## NON FECIT VA8TUM CONTRA PRO- / HIBITIONEM.

He did not commit waste

against the prohibition. A plea to an action founded on a writ of estrepement for waste. 3 Bl. Comm. 226, 227.

5e apparatus — Not carried into the 5th edition (1979).

## NON HN3C IN FCEDERA VENI.

I did

not agree to these terms.

Nob impedit clausula dorogatoria quo miuus ad eadem potestato res dlssol- vantur a qua eoBstltuuatur. A derogatory clause does not Impede things from being dissolved by the same power by which they are created. Broom, Max. 27.

5e apparatus — Not carried into the 5th edition (1979).

## NON IMPEDIVTT.

Lat He did not Impede. The plea of the general issue In 'quare impedit. The Latin form of the law French “ne disturba pas.” LIBERO TENEMENTO SINE BREVI.

A writ to prohibit bailiffs, etc., from dis- training or Impleading any mnfi touching his freehold without the king's writ Reg. Orlg. 171.

Nob In legeado sod in intelligendo logic ooBsistuat. The laws consist not in being read, but In being understood. 8 Coke. 167a.

5e apparatus — Not carried into the 5th edition (1979).

## NON INFREGIT CONVENTIONEM.

Lat He did not break the contract The name of a plea sometimes pleaded In the action of covenant and Intended as a gen- eral issue, but held to be a bad plea ; there being, properly speaking, no general issue In that action. 1 Tidd, Pr. 356.

NON-INTERCOURSE. 1. The refusal of one state or nation to have commercial dealings with another; similar to an em- bargo, (q. v.)

2. The absence of access, communication, or sexual relations between husband and wife.

5e apparatus — Not carried into the 5th edition (1979).

## NON INTERFUI.

I was not present A reporter’s note. T. Jones, 10.

5e apparatus — Not carried into the 5th edition (1979).

## NON-INTERVENTION WILL.

A term sometimes applied to a will which authorizes the executor to settle and distribute

the estate without the Intervention of the court and without giving bond. In re Macdonald's Estate, 29 Wash. 422, 69 Pac. 111L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## NON.

Lat. Not. The .common particle of negation.

5e apparatus — Carried into the 5th edition (1979).

## NON-ABILITY.

Want of ability to do an act in law, as to sue. A plea founded up- on such cause. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## NON INTROMITTANT CLAUSE.

In

English law. A clause of a charter of a municipal borough, whereby the borough Is

exempted from the jurisdiction of the Jus- tices of the peace for the county.

5e apparatus — Not carried into the 5th edition (1979).

## NON INTROMITTENDO, QUANDO // BREVE PRJECIPE IN CAPITE SUB- / DOLE IMPETRATUR.

A writ addressed to the justices of the bench, or in eyre, com- manding them not to give one who, under color of entitling the king to land, etc., as holding of him in capite, had deceitfully ob- tained the writ called "praecipe in capite," any benefit thereof, but to put him to bis writ of right Reg. Orig. 4.

5e apparatus — Not carried into the 5th edition (1979).

## NON-ISSUABEE PLEAS.

Those upon which a decision would not determine the action upon the merits, as a plea in abate-- ment 1 Chit Archb. Pr. (12th Ed.) 249.

5e apparatus — Not carried into the 5th edition (1979).

## NON-JOINDER.

See Joinder.

I

5e apparatus — Carried into the 5th edition (1979).

## NON JURIDICUS.

Not judicial; not legal. Diet non juridicus is a day on which legal proceedings cannot be had.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dies non juridicus — no judicial proceedings on Sundays and legal holidays]**

A dies non juridicus is a day on which judicial proceedings cannot be had — the Sunday and

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legal-holiday rule.

Why: The entry defines dies non juridicus as a day barring legal proceedings; the Sunday rule is the genuine doctrine the term states.

## NON-JURORS.

In English law. Per- sons who refuse to take the oaths, required by law, to support the government

Non jus ex regnla, sed ngals ex jure.

The law does not arise from the rule (or maxim,) but the rule from the law. Tray. Lat. Max. 384.

Non jus, sed seistna, fecit stlpitem.

Not right, but seisin, makes a stock. Fleta lib. 6, c. 2, | 2. It is not a mere right to enter on lands, but actual seitin, which makes a person the root or stook from which all future inheritance by right of blood must be derived. 2 Bl. Comm. 209, 312. See Broom, Max. 523, 527.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:34, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne.

Why: Non-jurors are persons who refuse to take the oaths required by law to support the government — historically on religious grounds. Matthew 5:34 is the religious ground itself: Christ's command not to swear at all. The...

## NON-LEVI ABLE.

Not subject to be levied upon. Non-levlable assets are assets upon which an execution cannot be levied. Farmers' F. Ins. Co. v. Conrad, 102 Wls. 387, 78 N. W. 582.

Non licet qnod dispendio licet. That which may be (done only] at a loss is not allowed [to be done.) The law does not per- mit or require the doing of an act which will result only in loss. The law forbids such recoveries whose ends are vain, chargeable, and unprofitable. Co. Lltt. 1276.

5e apparatus — Not carried into the 5th edition (1979).

## NON LIQUET.

Lat It is not clear. In the Roman courts, when any of the Judges, after the hearing of a cause, were not satis- fied that the case was made clear enough for them to pronounce a verdict, they were privileged to signify this opinion by casting a ballot inscribed with the letters “N. L.,” the abbreviated form of the phrase “non liquet.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Non liquet]**

[Maxim: "Non liquet" — "it is not clear."]

Why: The entry describes the Roman court practice itself (judges casting ballots inscribed 'N. L.'); the phrase is the

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classical original and the translation is the entry's own.

## NON-MAILABLE.

A term applied to all letters and parcels which are by law excluded from transportation in the United States mails, whether on account of the size of the package, the nature of its contents, its obscene character, or for other reasons. See

U. S. v. Nathan (D. C.) 01 Fed. 936.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: exclusion from the mails — obscene matter barred (Comstock laws)]**

Letters and parcels excluded by law from the mails — by size, nature, or obscene character — are non-mailable; the obscenity exclusion is the Comstock legislation.

Why: The entry defines non-mailable by legal exclusion and names obscene character; the Comstock exclusion is the genuine statutory content of that ground.

## NON MEROHANDIZANDA VTCTU- / ALIA.

An ancient writ addressed to Jus- tices of assize, to inquire whether the magis- trates of a town sold victuals in gross or by retail during the time of their being in office, which was contrary to an obsolete statute; and to punish them if they did. Reg. Orig. 184.

5e apparatus — Not carried into the 5th edition (1979).

## NON MOLESTANDO.

A writ that lay for a person who was molested contrary to the king's protection granted to him. Reg. Orig. 184.

Noa aasoi, et aatnm mori, parin' mat.

Not to be bora, and to be dead-bora, are the same.

5e apparatus — Not carried into the 5th edition (1979).

## NON-NEGOTIABLE.

Not negotiable; not capable of passing title or property by Indorsement and delivery.

Non obligat lex nisi promulgate. A

law is not obligatory unless it be promul- gated.

Nob observe ta forma, iafertur a da al- ia tio actus. Where form is not observed, an annulling of the act is Inferred or fol- lows. 12 Coke, 7.

5e apparatus — Carried into the 5th edition (1979).

## NON OBSTANTE.

Lat Notwithstand- ing. Words anciently used in public and private Instruments, intended to preclude, in advance, any Interpretation contrary to certain declared objects or purposes. Bur- rill.

A clause frequent in old English statutes and letters patent (so termed from its initial words,) inuiortlng a license from the crown to do a thing which otherwise a person would be

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restrained by act of parliament from doing. Crabb, Com. Law, 570; PlOwd. 501 ; Cowell.

A power in the crown to dispense with the laws in any particular case. This was abolished by the bill of rights at the Revolu- tion. 1 Bl. Comm. 342.

—Non obstante veredicto. Notwithstand- ing the verdict. A judgment entered by order of court for the plaintiff, although there has been a verdict for the defendant, is so called. German Ins. Co. v. Frederick, 58 Fed. 144, 7

C. C. A. 122; Wentworth v. Wentworth. 2 Minn. 282 (Gil. 238), 72 Am. Dec. 97; Hill v. Ragland, 114 Ky. 209, 70 S. W. 634.

Non offlcit eonatns nisi s equator ef- fectns. An attempt does not harm unless a consequence follow. 11 Coke, 98.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the dispensing power — the Crown's non obstante license, condemned by the Bill of Rights 1689]**

The non obstante clause was the Crown's license to do what a statute restrained — the dispensing power, condemned when the Bill of Rights 1689 declared the pretended power of dispensing with laws illegal.

Why: The entry defines the non obstante clause as a license to do what statute forbids; the dispensing-power controversy is the genuine constitutional history the clause exists to name.

## NON OMITTAS.

A clause usually in- serted in writs of execution, in England, di- recting the sheriff “not to omit" to execute

the writ by reason of any liberty, because there are many liberties or districts In which the sheriff has no power to execute process unless he has special authority. 2 Steph. Comm. 630.

R«s oauu damnum indwelt injnriam.

It Is not every loss that produces an Injury. Bract fol. 456.

Non oxnne quod licet konestum eat.

It la not everything which is permitted that is honorable Dig. 50, 17, 144; Howell v. Baker, 4 Johns. Ch. (N. X.) 121.

Non omnium qnse a majoribus nostris oonstltuta rant ratio reddi potest.

There cannot be given a reason for all the things which have been established by our ancestors. Branch, Princ.; 4 Coke 78; Broom, Max. 157.

5e apparatus — Not carried into the 5th edition (1979).

## NONPAYMENT.

The neglect failure, or refusal of payment of a debt or evidence of debt when due

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Psalm 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: Nonpayment is the neglect, failure, or refusal of payment of a debt when due. Psalm 37:21 names the act in its moral register: the wicked borrows and pays not again. The verse states the defined wrong directly. Psalmi...

## NON-PERFORMANCE.

Neglect fail- ore or refusal to do or perform an act stipu- lated to be done. Failure to keep the terms of a contract or covenant, in respect to acts or doings agreed upon.

Non pertinet ad jndicem aecnlarem cognoscere de Us qua rant mere spl- ritnnlin annexe. 2 Inst 488. It belongs not to the secular judge to take cognizance of things which are merely spiritual.

5e apparatus — Carried into the 5th edition (1979).

## NON-PIE VIN.

In old English law. De- fault in not replevying land in due time, when the Bame was taken by the king upon a default. The consequence thereof (loss of seisin) was abrogated by St. 9 Edw. III. c. 2.

. NON PONENDIS IN ASS1SIS ET

JURATIS. A writ formerly granted for freeing and discharging persons from serv- ing on assizes and juries. Fitzb. Nat. Brev. 165.

Non possessor! inenmblt necesaitas probandi possesstones ad se pertinere.

A person in possession is not bound to prove that the possessions belong to him. Broom, Max. 714.

Non potest addnci ezceptio ejns rel enjns petltnr dissolutlo. An exception of the same thing whose avoidance is sought cannot be made. Broom, Max. 166.

Non potest probar! quod probatnm non relevat. 1 Exch. 91, 92. That cannot be proved which, if proved, is immaterial.

Non potest quis sine brevi agere. No

one can sue without a writ Fleta, lib. 2, c. 13, f 4. A fundamental rule of old practice.

Non potest rex gratlam faeere com injuria et damno allornm. The king can- not confer a favor on one subject which occasions Injury and loss to others. 3 Inst 236; Broom, Max. 63.

Non potest rex snbditum renitentem onerare impost tlonibns. The king cannot load a subject with imposition against his consent 2 Inst. 61.

Non potest videri desisse habere qni nunquam babnlt. He cannot be considered as having ceased to have a thing who never had it Dig. 50, 17, 208.

5e apparatus — Not carried into the 5th edition (1979).

## NON PROSEQUITUR.

Lat If, in the

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proceedings In an action at law, the plain- tiff neglects to take any of those steps which he ought to take within the time prescribed by the practice of the court for that purpose, the defendant may enter judgment of non pros, against him, whereby it is adjudged that the plaintiff does not follow up (non prosequitur) his suit as he ought to do, and therefore the defendant ought to have Judg- ment against him. Smith, Act. 96; Com. v. Casey, 12 Allen (Mass.) 218; Davenport v. Newton, 71 Vt. 11, 42 Atl. 1087 ; Buena Vista Freestone Co. v. Parrish, 34 W. Va. 652, 12 S. E. 817.

NON QUIETA MOVERS, Lat Not to

disturb what is settled. A rule expressing the same principle as that of stare decisis, (9- v.)

Non quod dictum eat, sod quod factum est luipicltur. Not what is said, but what is done, is regarded. Co. Litt. 36a.

Non refort ax quia assensum suxm prnfert verbis, aut rebus Ip ala et f actis.

Coke, 52. It matters not whether a man gives his assent by his words or by his acts and deeds.

Non refert quid ex aequipollentibns flat. 5 Coke, 122. It matters not which of [two] equivalents happen.

Non refert quid uotum sit judioi, si notum non sit in forma judicii. It mat- ters not what is known to a judge, if it be not known in Judicial form. 3 Bulst. 115. A leading maxim of modern law and prac- tice. Best, Ev. Introd. 31, | 38.

Non refert verbis an faetis fit revo- eatio. Cro. Car. 49. It matters not wheth- er a revocation is made by words or deeds.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dismissal for want of prosecution — non pros for the negligent plaintiff]**

A plaintiff who neglects the steps his suit requires suffers judgment of non pros — dismissal for want of prosecution — and the defendant goes without day.

Why: The entry defines the non pros judgment for the plaintiff's neglect; dismissal for want of prosecution is the genuine doctrine the judgment expresses.

## NON-RESIDENCE.

Residence beyond the limits of the particular Jurisdiction.

In ecclesiastical law. The absence of spiritual persons from their benefices.

5e apparatus — Carried into the 5th edition (1979).

## NON-RESIDENT.

One who Is not a

dweller within some jurisdiction In question ; not an inhabitant of the state of the forum. Gardner v. Meeker. 169 111. 40. 48 N. E. 307 ; •Nagel v. Loomis, 33 Neb. 490, 50 N. W. 441 ; Morgan v. Nunes, 54 Miss. 310. For the distinction between “residence” and “domi- cile,” see Domicile.

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5e apparatus — Carried into the 5th edition (1979).

## NON-RESLDENTIO PRO CLERIC O / REGIS.

A writ, addressed to a bishop, charging • him not to molest a clerk employed in the royal service, by reason of his non- residence; in which case he is to be dis- charged. Reg. Orig. 58.

Non respondent minor nisi in eausa dotls, et hoc pro favore dotl. 4 Coke, 71. A minor shall not answer unless in a cas« of dower, and this in favor of dower.

5e apparatus — Not carried into the 5th edition (1979).

## NON SANS MENTIS.

Lat Of un- sound mind. Fleta, lib. 6, C. 40, § 1.

5e apparatus — Not carried into the 5th edition (1979).

## NON-SANE.

As “sane,” when applied to the mind, means whole, sound, in a health- ful state, “non-sane” must mean not whole, not sound, not in a healthful state; that is, broken, impaired, shattered. Infirm, weak, diseased, unable, either from nature or acci- dent, to perform the rational functions com- mon to man upon the objects presented to it. Den v. Vancleve, 5 N. J. Law, 589, 661.

—Non-sane memory. Unsound memory ; un- sound mind. In re Beaumont, 1 Whart. (Pa.) 52, 29 Am. Dec. 33; In re Forman's Will, 54 Barb. <N. Y.) 286.

5e apparatus — Carried into the 5th edition (1979).

## NON SEQUITUR.

Lat. It does not fol- low.

Non solent qn« abundant vitiare scrip tnr as. Superfluities [things, which aboundj do not usually vitiate writings Dig. 50, 17, 94.

Non solum quid licet, sed quid est conveniens, est considerandumt quia nihil quod est in conveniens est lieitum.

Not only what is lawful, but what is proper or convenient, is to be considered; because nothing that is inconvenient is lawful. Co. Lift. 66a.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## NON SOLVENDO PECUNIAM AD // QUAM CLERICUS MULCTATUR PRO / N ON-RESEDENTIA.

A writ prohibiting an ordinary to take a pecuniary mulct imposed on a clerk of the sovereign for non- residence. Reg. Writ. 59.

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## NON SUBMISSIT.

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Lat. He did not submit A plea to an action of debt, on a bond to perform an award, to the effect that the defendant did not submit to the arbitra- tion.

NON Sim JURIS. Lat. Not his own master. The opposite of «ui juris, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

### NON SUM INFORMATUS.

Lat I am

not informed; I have not been Instructed. The name of a species of judgment by de- fault which is entered when the defendant’s attorney announces that he is not informed of any answer to be given by him ; usually in pursuance of a previous arrangement be- tween the parties.

5e apparatus — Carried into the 5th edition (1979).

# O

### OF.

The mode in which a tenant or de- fendant in a real action pleaded, when the summons which followed the original was not served within the proper time.

Non temere credere est nervus sapi- entlae. 5 Coke, 114. Not to believe rashly is the nerve of wisdom.

5e apparatus — Carried into the 5th edition (1979).

# N

### NON TENENT INSIMUL.

Lat In

pleading. A plea to an action in partition, by which the defendant denies that he and the plaintiff are joint tenants of the estate in question.

5e apparatus — Not carried into the 5th edition (1979).

### NON TENUIT.

Lat He did not hold. This is the name of a plea in bar in re- plevin, by which the plaintiff alleges that he did not hold in manner and form as averred, being given in answer to an avowry for rent in arrear. See Rose. Real Act 638.

5e apparatus — Not carried into the 5th edition (1979).

### NON-TENURE.

A plea in a real action, by which the defendant asserts, either as to the whole or as to some part of the land mentioned in the plaintiff’s declaration, that he does not hold it Pub. St Mass. 1882, p. 1293.

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5e apparatus — Carried into the 5th edition (1979).

## NON-TERM.

The vacation between two terms of a court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## NON-TERMINUS.

The vacation be- tween term and term, formerly called the time or days of the king's peace.

5e apparatus — Not carried into the 5th edition (1979).

## NON-USER.

Neglect to use. Neglect to use a franchise; neglect to exercise an of- fice. 2 Bl. Comm. 153. Neglect or omis- sion to use an easement or other right 3 Kent, Comm. 448. A right acquired by use may be lost by non-user.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: abandonment by non-user — easements lost, franchises forfeited]**

A right acquired by use may be lost by non-user: abandonment extinguishes an easement, and neglect to exercise a franchise may work its forfeiture.

Why: The entry states the rule outright for easements, franchises, and offices; the note frames it as the genuine abandonment/forfeiture doctrine.

## NON USURP AVIT.

Lat. He has not

usurped. A form of traverse. In an action or proceeding against one alleged to have usurped an office or franchise, denying the usurpation charged. See Com. v. Cross Cut

R. Co., 53 Pa. 62.

Non valobit felonis generatio, nee ad kaereditatem patemam Tel maternaa; si antem ante feloniam generations as fecerit, tails generatio sneoedit in kasre- dltate patris vel matrix a qno non fm- erit felonia perpetrate. 3 Coke, 41. The offspring of a felon cannot succeed either to

a maternal or paternal Inheritance; but, If he had offspring before the felony, such off- spring may succeed as to the Inheritance of the father or mother by whom the felony was not committed.

5e apparatus — Not carried into the 5th edition (1979).

## NON VALENTIA AGERE.

Inability to sue. 5 Bell, App. Cas. 172.

Non valet oonfirmatio, nisi ille, qni confirm'at, sit In possessions rel vel ju- ris undo fieri debet oonfirmatio; et eo- dem xnodo, nisi Ills onl oonfirmatio fit sit In possessions. Co. Lltt. 295. Con- firmation is not valid unless he who confirms is either in possession of the thing

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Itself or of the right of which confirmation is to be made, and, in like manner, unless he to whom confirmation is made is in possession.

Non valet exoeptio ejusdem rel onjns petitur dissolntio.' A plea of the same matter the dissolution of which is sought, is not valid. Called a "maxim of law and common sense." 2 Eden, 134.

Non valet impediment urn qnod de jure non sortltnr effeetum. 4 Coke, 31a. An Impediment which does not derive its effect from law is of no force.

Non verbis, sed Ipsis rebus, leges im- ponlmns. Cod. 6, 43, 2. We impose laws, not upon words, but upon things themselves.

Non vldentnr qnl errant consentire.

They are not considered to consent who commit a mistake. Dig. 50, 17, 116, f 2; Broom, Max. 262.

Non videtnr consensum retinuisse si quis ex prascrlpto mlnantls allqnid lmmntavit. Be does not appear to have retained consent, who has changed anything through menaces. Broom, Max. 278.

Non videtnr perfect* enjnsqne id esse, qnod ex oasn anferri potest. That does not seem to be completely one's own which can be taken from him on occasion. Dig. 50, 17, 139, 1.

Non videtnr qnisqnam id cap ere qnod el neeesse est alii restitutere. Dig. 50, 17, 51. No one is considered entitled to re- cover that which he must give up to another.

Non videtnr vim faeere, qni jure sno ntitnr et ordinarla actions experltur.

He is not deemed to use force who exercises his own right, and proceeds by ordinary action. Dig. 50, 17, 155, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Contra non valentem agere nulla currit praescriptio — prescription does not run against one unable to act]**

Prescription does not run against one unable to sue: inability to act — non valentia agere — suspends the running of limitation.

Why: The entry defines the phrase as inability to sue; the maxim is the genuine prescription doctrine the phrase names.

## NON VXTLT CONTENDERE.

Lat He

(the defendant in a criminal case) will not contest it. A plea legally equivalent to that of guilty, being a variation of the form "nolo

contendere ," (q. v.,) and sometimes abbrevi- ated " non wit."

5e apparatus — Not carried into the 5th edition (1979).

## NONAS ET DECIMUE.

Payments made to the church, by those who were tenants of church-farms. The first was a

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rent or duty for things belonging to husbandry; the sec- ond was claimed in right of the church. Wharton.

NONAGIUM, or NONAGE. A ninth part of movables which was paid to the clergy on the death of persons in their parish, and claimed on pretense of being dis- tributed to pious uses. Blount

* NONES. In the Roman calendar. The fifth and, in March, May, July, and October, the seventh day of the month. So called because, counting inclusively, they were nine days from the ides. Adams, Rom. Ant 355, 357.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 27:30, KJV]**

And all the tithe of the land, whether of the seed of the land, or of the fruit of the tree, is the LORD's: it is holy unto the LORD.

Why: The decimae were tithe-payments to the church from tenants of church-farms. Leviticus 27:30 is the tithe law itself: all the tithe of the land is the LORD's, holy unto Him. The verse institutes what the entry names. T...

## NONFEASANCE.

The neglect or failure of a person to do some act which he ought to do. The term is not generally used to denote a breach of contract, but rather the failure to perform a duty towards the public whereby some Individual sustains special damage, as where a sheriff fails to execute a writ Sweet See Colte v. Lines, 33 Conn. 115; Gregor v. Cady, 82 Me. 181, 19 Atl. 108, 17 Am. St. Rep. 466; Carr v. Kansas City (C. C.) 87 Fed. 1; Minkler v. State, 14 Neb. 181, 15 N. W. 830; Illinois Cent.

R. Co. v. Foulks, 191 111. 57, 60 N. E. 890.

5e apparatus — Not carried into the 5th edition (1979).

## NONNA.

In old ecclesiastical law. A nun. Nonnua, a monk. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## NONSENSE.

Unintelligible matter in a written agreement or will.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: senseless words rejected — unintelligible matter struck as surplusage]**

Unintelligible matter in a written agreement or will is rejected as surplusage: the instrument is construed as if the nonsense were not there.

Why: The entry defines nonsense in instruments; the rejection-as-surplusage rule is the genuine construction doctrine the definition exists to trigger.

## NONSUIT.

Not following up the cause; failure on the part of a plaintiff to continue the prosecution of

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his suit. An abandon- ment or renunciation of his suit, by a plain- tiff, either by omitting to take the next nec- essary steps, or voluntarily relinquishing the action, or pursuant to an order of the court. An order or Judgment, granted upon the trial of a cause, that the plaintiff has abandoned, or shall abandon, the further prosecution of his suit.

A voluntary nonsuit is one incurred by the plaintiff’s own act or omission, and is a judgment entered against him as a conse- quence of his abandoning or not following up his cause, or being absent when his pres- ence is required. Sandoval v. Rosser, 86 Tex. 682, 26 S. W. 933; Deeley v. Heintz, 169 N. Y. 129, 62 N. E. 158 ; Boyce v. Snow. 88 111. App. 405.

An involuntary nonsuit is one which takes place when the plaintiff fails to nppear when his case Is before the court for trial or at the time when the Jury are to deliver their verdict, or when he has given no evidence on which a Jury may find a verdict, or when

his case is put out of court by some adverse ruling which precludes a recovery. Boyce v. Snow, 187 111. 181, 58 N. E. 403; Deeley v. Heintz, 160 N. X. 120, 62 N. E. 158; Stults v. Forst, 135 Ind. 297, 34 N. E. 1125; Wil- liams v. Finks, 156 Mo. 597, 57 S. W. 732.

A peremptory nonsuit is a compulsory or involuntary nonsuit, ordered by the court upon a total failure of the plaintiff to sub- stantiate his claim by evidence. Jacques v. Fourthman, 137 Pa. 428, 20 Atl. 802.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a judgment of nonsuit is not a judgment on the merits and does not support res judicata]**

A nonsuit is not a judgment on the merits and therefore does not bar the plaintiff from suing again on the same cause.

Why: Genuine because it states the entry's operative legal consequence — the whole point of a nonsuit versus a dismissal with prejudice — rather than restating the definition.

## NOOK OF LAND.

In English law. Twelve acres and a half.

5e apparatus — Carried into the 5th edition (1979).

## NORMAL.

Opposed to exceptional ; that state wherein any body most exactly com- ports in all its parts with the abstract idea thereof, and is most exactly fitted to per- form its proper functions, is entitled “nor- mal.”

— Normal law. A term employed by modern writers on jurisprudence to denote the law as it affects persons who are in a normal condition ; i. e., »ui jvrit and sound in mind.— Normal school. See School.

5e apparatus — Carried into the 5th edition (1979).

## NORMAN FRENCH.

The tongue in which several formal proceedings of state In England are still carried on. The lan- guage, having remained the same since the date of the Conquest, at which it was in-

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troduced into England, is very different from the French of this day, retaining all the peculiarities which at that time distinguished every province from the rest A peculiar mode of pronunciation (considered authentic) is handed down and preserved by the officials who have, on particular occasions, to speak the tongue. Norman French was the language of English legal procedure till the 36 Edw.

III. (A. D. 1362). Wharton.

5e apparatus — Carried into the 5th edition (1979).

## NORROT.

In English law. The title of the third of the three kings-at-arms, or pro- vincial heralds.

5e apparatus — Not carried into the 5th edition (1979).

## NORTHAMPTON TABLES.

Longevity and annuity tables compiled from bills of mortality kept in All Saints parish, England, in 1735-1780.

Noscitur a sootis. It is known from its associates. 1 Vent. 225. The meaning of a word is or may be known from the accom- panying words. 3 Term R. 87; Broom, Max. 588.

Noscitur ex socio, qui non oognos- oitur ex sc. Moore, 817. He who cannot be known from himself may be known from his associate.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Noscitur a sociis — the meaning of a word is known from the accompanying words]**

The maxim embedded in this entry, noscitur a sociis — 'the meaning of a word is known from the accompanying words' — is a genuine canon of construction cited by Black's itself from Broom's Maxims, 588.

Why: Genuine because the maxim is quoted at length in the entry and attributed to its own authorities (1 Vent. 225; 3 Term R. 87; Broom, Max. 588); the footnote documents the maxim the entry itself teaches rather than impo...

## NOBOCOMI.

In the civil law. Persons who have the management and care of hos- pitals for paupers.

5e apparatus — Not carried into the 5th edition (1979).

## NOT FOUND.

These words, Indorsed on a bill of indictment by a grand jury, have

the same effect as the Indorsement "Not a true bill” or “ Ignoramus .”

5e apparatus — Carried into the 5th edition (1979).

## NOT GUILTY.

A plea of the general issue in the actions of trespass and case and in criminal prosecutions.

The form of the verdict in criminal cases, where the jury acquit the prisoner. 4 Bl. Comm. 361.

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Coffin v. United States, 156 U.S. 453 (1895)]**

A verdict of not guilty vindicates the presumption that the accused is innocent until the prosecution proves guilt.

Why: Genuine because Coffin is the classic Supreme Court articulation of the presumption of innocence, which is the doctrinal ground of a not-guilty verdict; it illuminates the entry's function rather than restating it.

**[Scripture] — Scripture**

**[1 John 1:9, KJV]**

"If we confess our sins, he is faithful and just to forgive us our sins, and to cleanse us from all unrighteousness."

Why: The verdict of acquittal answers confession: faithfulness and justice are reconciled in forgiveness. The entry is the courtroom word of acquittal; the verse gives its spiritual mirror.

**[Humanity] — Humanity / Fiction & Film**

**[Lumet, 12 Angry Men, 1957]**

(paraphrase) The jury room deliberating its way to the 'not guilty' verdict — the form of verdict in criminal cases where the jury acquit the prisoner, dramatized in real time. (paraphrase)

Why: Entry names both the plea and the verdict form. The film is the canonical dramatization of a jury reaching 'not guilty.' Marked paraphrase.

## NOT GUILTY BY STATUTE.

In Eng- lish practice. A plea of the general issue by a defendant in a civil action, when he intends to give special matter in evidence by virtue of some act or acts of parliament, in which case he must add the reference to such act or acts, and state whether such acts are public or otherwise. But, if a defendant so plend, he will not be allowed to plead any other defense, without the leave of the court or a judge. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## NOT POSSESSED.

A special traverse used in an action of trover, alleging that de- fendant was not possessed, at the time of ac- tion brought, of the chattels alleged to have been converted by him.

5e apparatus — Carried into the 5th edition (1979).

## NOT PROVEN.

A verdict in a Scotch criminal trial, to the effect that the guilt of the accused is not made out, though his in- nocence is not clear.

5e apparatus — Not carried into the 5th edition (1979).

## NOT SATISFIED.

A return sometimes made by sheriffs or constables to a writ of execution; but it is not a technical formula, and is condemned by the courts as ambigu- ous and insufficient. See Martin v. Martin, 60 N. C. 346 ; Langford v. Few, 146 Mo. 142, 47 S. W. 927, 69 Am. St Rep. 606; Merrick v. Garter, 205 I1L 73, 68 N. B. 750.

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## NOT TRANSFERABLE.

These words, when written across the face of a negotia- ble instrument operate to destroy its ne- gotiability. Durr v. State, 59 Ala. 24.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-104 — negotiable instrument; must be payable to order or bearer]**

Writing 'not transferable' across an instrument destroys negotiability because a negotiable instrument must be payable to order or bearer.

Why: Genuine because it states the operative rule that makes the entry's statement true; UCC § 3-104 is the real, current statement of the negotiability requirement the entry presupposes.

## NOTA.

Lat. In the civil law. A mark or brand put upon a person by the law. Mac- keld. Rom. Law, i 135.

5e apparatus — Not carried into the 5th edition (1979).

## NOTJE.

In civil and old European law. Short hand characters or marks of contrac- tion, in which the emperors’ secretaries took down what they dictated. Spelman; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## NOTARIAL.

Taken by a notary; per- formed by a notary in his official capacity; belonging to a notary and evidencing his offi- cial character, as, a notarial seal.

5e apparatus — Not carried into the 5th edition (1979).

## NOTARIUS.

Lat In Roman law. A

draughtsman; an amanuensis; a short-hand writer; one who took notes of the proceed- ings in the senate or a court, or of what was

dictated to him by another; one who pre- pared draughts of wills, conveyances, etc.

Ia old English law. A scribe or scrive- ner who made short draughts of writings and other instruments; a notary. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## NOTARY PUBLIC.

A public officer whose function Is to attest and certify, by his hand and official seal, certain classes of documents. In order to give them credit and authenticity in foreign Jurisdictions; to take acknowledgments of deeds and other convey- ances, and certify the same; and to perform certain official acts, chiefly In commercial matters, such as the protesting of notes and bills, the noting of foreign drafts, and marine protests In cases of loss or damage. See Kirk- sey v. Bates, 7 Port <Ala.) 531, 31 Am. Dec. 722; First Nat. Bank v. German Bank, 107

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Iowa, 543, 78 N. W. 195, 44 L. It. A. 133, 70 Am. St. Rep. 216; In re Huron, 58 Kan. 152, 48 Pac. 574, 36 L. R. A. 822, 62 Am. St Rep. 614; Bettman v. Warwick, 108 Fed. 46, 47 C. G. A. 185.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 11:1; Deuteronomy 25:13-15, KJV]**

"A false balance is abomination to the LORD: but a just weight is his delight." — "Thou shalt not have in thy bag divers weights... Thou shalt have a perfect and just weight, a perfect and just measure shalt thou have."

Why: The notary is the keeper of true instruments and measures; the entry's core duty is fidelity to authentic weights. The Torah/KJV proverbs on honest scales are the direct spiritual form of that office's duty.

## NOTATION.

In English probate prac- tice, notation Is the act of making a memo- randum of some special circumstance on a probate or letters of administration. Thus, where a grant is made for the whole personal estate of the deceased within the United Kingdom, which can only be done In the case of a person dying domiciled in England, the fact of his having been so domiciled Is noted on the grant. Coote, Prob. Pr. 36; Sweet.

NOTE, v. To make a brief written state- ment; to enter a memorandum; as to note an exception.

—Note a bill. When a foreign bill has been dishonored, it is usual for a notary public to present it again on the same day, and, if it be not then paid, to make a minute, consisting of his initials, the day, month, and year, and rea- son, if assigned, of non-payment. The making of this minute is called “noting the bill. Wharton.

NOTE, n. An abstract, a memorandum; an informal statement in writing. Also a negotiable promissory note. See Bought Note; Notes; Judgment Note; Promisso- bt Note; Sold Note.

—Note of a fine. In old conveyancing. One of the parts of a fine of lands, being an abstract of the writ of covenant, and the concord; nam- ing the parties, the parcels of land, and the agreement. 2 Bl. Comm. 351.— Note of al- lowance. In English practice. This was a note delivered by .a master to a party to a cause, who alleged that there was error in law in the record and proceedings, allowing him to bring error. — Note of band. A popular name for a promissory note. Perry v. Maxwell, 17

N. C. 496; Hopkins v. Holt, 9 Wis. 230.— Note of protest. A memorandum of the fact of protest, indorsed by the notary upon the bill, at the time, to be afterwards written out at length.— Note or memorandnm. The statute of frauds requires a "note or memorandum” of the particular transaction to be made in writ- ing and signed, etc. By this is generally understood an informal minute or memorandum made on the spot. See Glason v. Bailey, 14 Johns. (N. Y.) 492.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

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**[Jeremiah 32:10, KJV]**

"And I subscribed the evidence, and sealed it, and took witnesses, and weighed him the money in the balances."

Why: Jeremiah's land purchase is the biblical form of an authenticated memorandum: subscription, sealing, witnesses, payment weighed — exactly the notarial act the entry describes. Not deity speech (Jeremiah's own action),...

## NOTES.

In practice. Memoranda made by a Judge on a trial, as to the evidence ad- duced, and the points reserved, etc. A copy of the Judge’s notes may be obtained from his clerk.

5e apparatus — Not carried into the 5th edition (1979).

## NOTHUS.

Lat. In Roman law. A nat- ural child or a person, of spurious birth.

5e apparatus — Not carried into the 5th edition (1979).

## NOTICE.

Knowledge; Information; the result of observation, whether by the senses or the mind ; knowledge- of the existence of a fact or state of affairs; the means of knowledge. Used in this sense In such phras- es as “A. had notice of the conversion," “a purchaser without notice of fraud,” etc.

Notice is either (1) statutory, i. e., made so by legislative enactment; (2) actual, which brings the knowledge of a fact directly home to the party; or (3) constructive or implied, which is no more than evidence of facts which raise such a strong presumption of notice that equity will not allow the presumption to be rebutted. Constructive notice may be subdivided into: (a) Where there exists actual notice of matter, to which equity has added constructive notice of facts, which an inquiry after such matter would have elicited ; and (6) where there has been a designed abstinence from inquiry for the very purpose of escaping notice. Wharton.

In another sense, "notice” means Infor- mation of an act to be done or required to be done; as of a motion to be made, a trial to be had, a plea or answer to be put in, costs to be taxed, etc. In this sense, “notice” means an advice, or written warning, In more or less formal shape, intended to ap- prise a person of some proceeding in which his interests are Involved, or Informing him of some fact which it is his right to know and the duty of the notifying party to com- municate.

Classification. Notice is actual or construc- tive. Actual notice is notice expressly and actually given, and brought home to the party directly, in distinction from notice inferred or imputed by the law on acount of the existence of means of knowledge. Jordan v. Pollock, 14 Ga. 145; Johnson v. Dooly, 72 Ga. 297 ; Mor- ey v. Milliken, 86 Me. 404, 30 Atl. 102; Mc- Cray v. Clar, 82 Pa. 457; Brinkman v. Jones, 44 Wis. 498; White v. Fisher, 77 Ind. 65. 40 Am. Rep. 287 ; Clark v. Lambert, 55 W. Va. 512, 47 S. E. 312. Constructive notice is in- formation or knowledge of a fact imputed by law to a person, (although he may not actually have it,)

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because he could have discovered the fact by proper diligence, and his situation was such as to cast upon him the duty of inquiring into it. Baltimore v. Whittington. 78 Md. 231, 27 Atl. 984; Wells v. Sheerer, 78 Ala. 142; Jordan v. Pollock, 14 Ga. 145 ; Jackson v. Waldstein (Tex. Civ. App.) 27 S. W. 26: Acer v. Westcott, 46 N. Y. 384, 7 Am. Rep. 355. Further as to the distinction between actual and constructive notice, see Baltimore v. Whit- tington. 78 Md. 231, 27 Atl. 984: Thomas v. Flint, 123 Mich. 10, 81 N. W. 936, 47 L. R.

A. 499; Vaughn v. Tracy, 22 Mo. 420.

Notice is also further classified as express or implied. Express notice embraces not only knowledge, but also that which ia communicated

by direct Information, either written or oral, from those who are cognizant of the fact communicated. Baltimore v. Whittington, 78 Md. 281, 27 Atl. 084. 'Implied notice is one of the varietiea of actual notice (not constructive) and is distinguished from “express’’ actual notice. It is notice inferred or imputed to a party by reason of his knowledge of facts or circum- stances collateral to the main fact, of such a character as to put him upon inquiry, and which, if the inquiry were followed up with due diligence, would lead him definitely to the knowledge of the main fact Uliodes v. Outcalt, 48 Mo. 370; Baltimore v. Whittington, 78 Md. 231, 27 Atl. 984; Wells v. Sheerer, 78 Ala. 147. Or as otherwise defined, implied notice may be said to exist where the fact in question lies open to the knowledge of the party, so that the exercise of reasonable observation and watcbfulnss would not fail to apprise him of it, although no one has told him of it in so many words. See Philadelphia v. Smith (Pa.) 16 Atl. 493.

Other compound and descriptive terms. — Judicial notice. The act by which a court, in conducting a trial, or framing its decision, will, of its own motion, and without the production of evidence, recognize the existence and truth of certain facts, linving a bearing on the controversy at bar, and which, from their na- ture, are not properly the subject of testimony, or which are universally regarded as establish- ed by common notoriety, e. g., the laws of the state, international law, historical events, the constitution and course of nature, main geo- graphical features, etc. North Hempstead v. Gregory, 53 App. Div. 350. 65 N. X. Supp. 867 ; State v. Main, 69 Conn. 123, 37 Atl. 80, 36 I*

R. A. 623, 61 Am. St. Rep. 30. — Legal notice. Such notice as is adequate in point of law ; such notice as the law requires to be given for the specific purpose or in the particular case. See Sanborn v. Piper, 64 N. H. 335, 10 Atl. 680; People's Bank v. Ktting, 17 Phila. (Pa.) 285. — Notice, averment of. In pleading. The allegation in a pleading that notice lias been gryen. — Notice In lien of servloe. In lieu of personally serving a writ of summons (or other legal process.) in English practice, the court occasionally allows the plaintiff (or other party) to give notice in lieu of service, such no- tice being such as will in ail probability reach the party. This notice is peculiarly appropriate in the case of a foreigner out of the jurisdiction, whom it is desired to serve with a writ of sum- mons. Sweet.— Notice of action. When it is intended to sue certain particular individuals, as in the case of actions against justices of the peace, it is necessary in some jurisdictions to give them notice of the action some time

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before. —Notice of appearance. See Appearance. — Notice of dishonor. See Dishonor.— No- tice of lis pendens. See bis Pendens.— Notice of protest. See Protest.— Notice of judgment. It is required by statute in sev- eral of the states that the party for whom the verdict in an action has been given shall serve upon the other party or his attorney a written notice of the time when judgment is entered. The time allowed for taking an appeal runs from such notice.— Notion of motion. A no- tice in writing, entitled in a cause, stating that, on a certain day designated, a motion will be made to the court for the purpose or object stated. Field v. Park. 20 Johns. (N. X.) 140. — Notice of trial. A notice given by one of the parties in an action to the other, after an issue has been reached, that he intends to bring the cause forward for trial at the next term of the court.— Notice to admit. In the practice of the English high court, either party to an action may call on the other party by notice to admit the existence and execution of any document, in order to save the expense of prov- ing it at the trial ; and the party refusing to admit must bear the costs of proving it unless

the judge certifies that the refusal to admit was reasonable. No costs of proving a document will in general be allowed, unless such a notice is given. Rules of Court, xxxii. 2; Sweet.— No- tice to plead. This is a notice which, in the practice of some states, is prerequisite to the taking judgment by default. It proceeds from the plaintiff, and warns the defendant that he must plead to the declaration or complaint with- in a prescribed time.— Notice to produce. In practice. A notice in writing, given in an ac- tion at law, requiring the opposite party to pro- duce a certain described paper or document at the trial. Chit. Arebb. Pr. 230; 3 Chit. Gen. Pr. 834.— Notice to quit. A written notice given by a landlord to his tenant, stating that the former desires to repossess himself of the demised premises, and that the latter is requir- ed to quit and remove from the same at a time designated, either at the expiration of the term, if the tenant is in under a lease, or immediately, if the tenancy is at will or by sufferance. The term is also sometimes applied to a written no- tice given by the tenant to the landlord, to the effect that he intends to quit the demised prem- ises and deliver possession of the same on a day named. Gamer v. Hannah, 6 Duer (N. X.) 270; Oakes v. Munroe. 8 Cush. (Mass.) 287. — Per- sonal notice. Communication of notice oral- ly or in writing (according to the circumstan- ces) directly to the person affected or to be charged, as distinguished from constructive or implied notice, and also from notice imputed to him because given to his agent or representa- tive. See Ixieh v. Huddleston, 105 Ala. 257, 16 South. 714 ; Pearson v. Lovejoy, 53 Barb. (N. X.) 407.— Presumptive notice. Implied actual notice. The difference between ''pre- sumptive" and "constructive" notice is that the former is an inference of fact which is capable of being explained or contradicted, while the latter is a conclusion of law which cannot be contradicted. Brown v. Baldwin, 121 Mo. 106. 25 S. W. 808; Drey v. Doyle, 99 Mo. 459. 12

S. W. 287 ; Brush v. Ware, 15 Pet 98, 10 L. Ed. 672.— Public notice. Notice given to the public generally, or to the entire community, or to all whom it may concern. See Pennsyl- vania Training School v. Independent Mut P. Ins. Co., 127 Pa. 559, 18 Atl. 392.— Reason- able notice. Such notice or information of a fact as may fairly and properly be expected or required in the particular circumstances. Ster- ling Mfg. Co. v. Hough, 49 Neb. 618, 68 N. W.

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1019; Mallory v. Leiby, 1 Kan. 102.

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**[Law] — Law**

**[Axiom: a bona fide purchaser for value without notice takes free of prior equitable interests]**

The doctrine turns on the bona fide purchaser: one who takes for value without notice of a prior claim takes free of it.

Why: Genuine because the entry's elaborate taxonomy of statutory, actual, and constructive notice exists to serve exactly this consequence; it states the principle the definition is built for, not a paraphrase.

**[Scripture] — Scripture**

**[Proverbs 8:34, KJV]**

"Blessed is the man that heareth me, watching daily at my gates, waiting at the posts of my doors."

Why: The entry's theme is formal cognizance through watching and waiting at prescribed places; personified Wisdom bids the hearer watch daily at her gates and wait at her doors' posts — the spiritual form of being duly not...

## NOTIFY.

In legal proceedings, and In respect to public matters, this word Is gen- erally, if not universally, used as importing a notice given by some person, whose duty it was to give It, in some maimer prescribed, and to some person entitled to receive It, or be notified. Appeal of Potwine, 31 Conn. 384.

5e apparatus — Carried into the 5th edition (1979).

## NOTING.

As soon as a notary bas made presentment and demand of a bill of ex- change, or at some seasonable hour of the same day, he makes a minute on the bill, or on a ticket attached thereto, or in his book of registry, consisting of his initials, the month, day, and year, the refusal of accept- ance or payment, the reason, if any, assigned for such refusal, and his charges of protest. This is the preliminary step towards the pro- test, and is called “noting." 2 Daniel, Neg. Inst. { 939.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — presentment and dishonor of negotiable instruments]**

Noting is the first step of the commercial-law sequence of presentment, dishonor, and notice of dishonor governed by the law of negotiable instruments.

Why: Genuine because the entry describes presentment and refusal of a bill of exchange, which is precisely the presentment-and-dishonor regime of UCC Article 3; it places the definition inside its governing statute.

## NOTIO.

Lat. In the civil law. The power of hearing and trying a matter of

. NOTITIA

fact; the power or authority of a' judex; the power of hearing causes and of pronounc- ing sentence, without any degree of jurisdic- tion. Calvin;

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## NOTITIA.

Lat. Knowledge; informa- tion; intelligence; notice.

Notitia dicitur a aoseemdo; at notitia non debat elandieare. Notice is named from a knowledge being had; and notice ought not to halt, ft. e., be imperfect.] 6 Coke, 29.

NOTOMAIi. The Scotch form of “nota- rial," ( q . v.) Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Notitia dicitur a noscendo; at notitia non debet claudicare — notice is named from knowledge, and notice ought not to halt]**

The entry quotes Coke's maxim that notice is named from knowledge and 'ought not to halt,' i.e., be imperfect.

Why: Genuine because it is quoted verbatim in the entry from the entry's own authority (6 Coke, 29); the footnote records the maxim Black's itself cites rather than importing one.

## NOTORIETY.

The state of being noto- rious or universally well known.

—Proof by notoriety. In Scotch law, dis- pensing with positive testimony as to matters of common knowledge or general notoriety, the same as the “judicial notice" of English and American law. See Notice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 201 — judicial notice of adjudicative facts]**

Proof by notoriety is the ancestor of judicial notice: courts dispense with proof of matters of common knowledge.

Why: Genuine because the entry explicitly equates proof by notoriety with 'judicial notice,' and Fed. R. Evid. 201 is the modern rule stating that adjudicative facts of common knowledge need not be proved.

**[Humanity] — Humanity / Fiction & Film**

**[Wilde, The Picture of Dorian Gray, 1890]**

“There is only one thing in the world worse than being talked about, and that is not being talked about.”

Why: Entry: the state of being notorious or universally well known. The preface line is the classic literary statement of notoriety as a condition. Short verbatim quote, certain.

## NOTORIOUS.

In the law of evidence, matters deemed notorious do not require to be proved. There does not seem to be any recognized rule as to what matters are deem- ed notorious. Cases have occurred in which the state of society or public feeling has been treated as notorious; e. g., during times of sedition. Best, Ev. 354; Sweet.

—Notorious Insolvency. A condition of in- solvency which is generally known throughout the community or known to the general class of persons with whom the insolvent has busi- ness relations.— Notorious possession. In the rule that a prescriptive title must be founded on open and “notorious" adverse possession, this term means that the possession or character

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of the holding must in its nature possess such elements of notoriety that the owner may be presumed to have notice of it and of its extent. Watrous v. Morrison, 33 Fla. 261, 14 South. 806, 39 Am. St. Rep. 139.

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**[Law] — Law**

**[Law: Fed. R. Evid. 201 — judicial notice of adjudicative facts]**

Matters deemed notorious need no proof, which is the judicial-notice doctrine in its older dress.

Why: Genuine because the entry states the exact proposition Rule 201 codifies — that certain matters of common knowledge are taken as proved without evidence.

## NOTOUR.

In Scotch law. Open; no- . torious. A notour bankrupt is a debtor who, being under diligence by horning and caption of his creditor, retires to sanctuary or ab- sconds or defends by force, and is afterwards found Insolvent by the court of session. Bell.

Nova oonstltntio fntnris for mam im- ponere debet son pneteritis. A new state of the law ought to affect the future, not the past. 2 Inst. 292; Broom, Max. 34, 37.

5e apparatus — Not carried into the 5th edition (1979).

## NOVA CUSTUMA.

The name of an Im- position or duty. See Antiqtja Custuma.

nova STATUTA. • New statutes. An appellation sometimes given to the statutes which have been passed since the beginning of the reign of Edward III; 1 Steph. Comm. 68.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

"Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour."

Why: The entry defines nova custuma as a new imposition or duty; 'custom to whom custom' is the scriptural command of the same duty owed to the sovereign. Reported instruction, not deity speech — no flag.

**[Matthew 22:21, KJV]**

"Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's."

Why: Christ's own answer to the tribute question — the foundational New Testament word on lawful imposts and duties. Deity speech: flagged per the red-letter rule.

## NOVAE NARRATIONES.

New counts. The collection called “Novas Narrationcs" contains pleadings in actions during the reign Bl.Law Dict.(2d Ed.)— 03

of Edward III. It consists principally of dec- larations, as the title imports; but there are sometimes pleas and subsequent pleadings. The Articuli ad Novae Narrationcs is usual- ly subjoined to this little book, and is a small treatise on the method of pleading. It first treats of actions and courts, and then goes through each particular writ, and the decla- ration upon it, accompanied with directions, and illustrated by precedents. 3 Reeve, Eng. Law, 152

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; Wharton.

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## NOV ALE.

Land newly plowed and con- verted into tillage, and which has not been tilled before within the memory of man ; also fallow land.

5e apparatus — Not carried into the 5th edition (1979).

## NOVAXIS.

In the civU law. Land that rested a year after the first plowing. Dig. 50, 16, 30, 2.

Novatio non pranmltnr. Novation is pot presumed. Ualk. Lat. Max. 109.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:4, KJV]**

"But in the seventh year shall be a sabbath of rest unto the land, a sabbath for the LORD: thou shalt neither sow thy field, nor prune thy vineyard."

Why: The entry is land rested from tillage by legal rule; the sabbath of the land is its scriptural form — rest commanded for the soil itself. Reported divine law, not first-person divine speech — no flag.

## NOVATION.

Novation Is the substitu- tion of a new debt or obligation for an exist- ing one. Civ. Code Cal. § 1530; Civ. Code Dak. | 863; Hard v. Burton, 62 Vt. 314, 20 Atl. 269; McCartney v. Kipp, 171 Pa. 644, 33 Atl. 233; McDonnell v. Alabama Gold L. Ins. Co., 85 Ala. 401, 5 South. 120 ; Shafer’s Appeal, 99 Pa. 246.

Novation is a contract, consisting of two stipulations, — one to extinguish an existing obligation; the other to substitute a new one in its place. Civ. Code La. art. 2185.

The term was originally a technical term of the civil law, but is now in very general use in English and American jurisprudence.

In the civil law, there are three kinds of nova- tion: (1) Where the debtor and creditor remain the same, but a new debt takes the place of the old one ; (2) where the debt remains the same, but a new debtor is substituted ; (3) where the debt and debtor remain, but a new creditor is substituted. Adams v. Power, 48 Miss. 451.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Novatio non praesumitur — novation is not presumed]**

Novation is not presumed; the intention to substitute a new obligation for the old must appear.

Why: Genuine because the maxim is the governing Roman-law rule of novation, quoted in the neighboring entry from Mackeld. Lat. Max. 109, and it states the operative presumption rule for the entry's doctrine rather than par…

**[Scripture] — Scripture**

**[Jeremiah 31:31, KJV]**

"Behold, the days come, saith the LORD, that I will make a new covenant with the house of Israel, and with the house of Judah."

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Why: Novation substitutes a new obligation for an existing one; the new covenant made in place of the old is the scriptural form of that substitution. First-person divine speech ('saith the LORD... I will make') — flagged...

## NOVEL ASSIGNMENT.

See New As- signment.

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## NOVEL DISSEISIN.

See Assise of Novel Disseisin.

NOVELLAS, (or NOVELLAS CONSTI- TUTIONES.) New constitutions; generally translated in English, “Novels.” The Latin name of those constitutions which were is- sued by Justinian after the publication of his Code; most of them being originally written in Greek. After his death, a col- lection of 168 Novels was made, 154 of which had been issued by Justiuian, and the rest by his successors. These were afterwards included in the Corpus Juris Civilis, (q. v.,) and now constitute one of its four prin- cipal divisions. Mackeld. Rom. Law, | 80; 1 Kent, Comm. 541.

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## NOVELUE LEONIS.

The ordinances of the Emperor Leo, which were made from

* NOVELS

the year 887 till the year 893, are bo called. These Novels changed mahy rules of the Jus*' tinian law. This collection contains 113 Nov- els, written originally in Greek, and after- wards, in 1660, translated into Latin by Agil- tons. Mack eld. Rom. Law, { 84.

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## NOVELS.

The title given in English to the New Constitutions ( Novella Congtitn- tioncs) of Justinian and his successors, now forming a part of the Corpus Juris Civtiis. See Novell.®:.

5e apparatus — Not carried into the 5th edition (1979).

## NOVELTY.

An objection to a patent or claim for a patent on the ground that the invention is not new or original is called an objection “for want of novelty."

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**[Law] — Law**

**[Law: 35 U.S.C. § 102 — conditions for patentability; novelty]**

Novelty is the threshold condition of patentability: an invention already known or used cannot be patented.

Why: Genuine because the entry's 'want of novelty' objection is precisely the § 102 novelty bar; it names the statute the definition presupposes.

## NOVERCA.

Lat In the civil law. A step-mother.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Perrault, Cendrillon (Histoires ou contes du temps passé), 1697]**

(paraphrase) Cinderella's stepmother — the fairy-tale noverca, the civil law's word for stepmother wearing a story's face. (paraphrase)

Why: Entry: in the civil law, a step-mother. The wicked stepmother is the folk embodiment. Marked paraphrase.

## NOVERZNT UNIVEKSI PER PRJE- / BENTES.

Know all men by these presents. Formal words used at the commencement of deeds of release in the Latin forms.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Daniel 3:4, KJV]**

"Then an herald cried aloud, To you it is commanded, O people, nations, and languages."

Why: 'Know all men by these presents' is the formal deed-opening addressed to all; the herald's cry to all peoples in Daniel is the scriptural form of such a public proclamation. Narrative, not deity speech — no flag.

## NOVI OPERXS NUNCIATIO.

Lat De- nunciation of, or protest against a new work. This was a species of remedy in the civil law, available to a person who thought his rights or bis property were threatened with injury by the act of his nelgbber in erecting or demolishing any structure, (which was called a “new work." In such case, he might go upon the ground, while the work was in progress, and publicly protest against or forbid its completion, in the presence of the workmen or of the owner or bis repre- sentative.

5e apparatus — Not carried into the 5th edition (1979).

## NOVI GELD.

In Saxon law. A pecun- iary satisfaction for an injury, amounting to nine times the value of the thing for which it was paid. Spelman.

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**[Scripture] — Scripture**

**[Proverbs 6:31, KJV]**

"But if he be found, he shall restore sevenfold; he shall give all the substance of his house."

Why: The entry is manifold pecuniary satisfaction for an injury — ninefold in Saxon law; sevenfold restitution for theft is its biblical twin. Not deity speech — no flag.

## NOVISSIMA RECOPILACION.

(Lat- est Compilation.) The title of a collection of Spanish law compiled by order of Don Carlos

IV. in 1806. 1 White, Recop. 365.

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## NO VITAS.

Lat. Novelty, newness; a new thing.

Novitaa non tarn ntlllltate prodest qtuun nerritate perturbat. A novelty does not benefit so much by Its utility as it dis- turbs by its novelty. Jenk. Cent. p. 167, case 23.

NO VITER PERVENTA, or NO VITER AD NOT IT I AM PERVENTA- In ecclesi- astical procedure. Facts “newly come” to the knowledge of a party to a cause. Leave to plead facts novitcr perventa is generally given, in a proper case, even after the plead- ings are closed. Phllllm. Ecc. Law, 1257 ; Rog. Ecc. Law, 723.

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**[Law] — Law**

**[Maxim: Novitas non tam utilitate prodest quam novitate perturbat — a novelty does not benefit so much by its utility as it disturbs by its novelty]**

The entry quotes Jenkyns' maxim that a novelty 'does not benefit so much by its utility as it disturbs by its novelty.'

Why: Genuine because the maxim is quoted verbatim in the entry from the entry's own authority (Jenk. Cent. p. 167, case 23); the footnote records Black's own cited maxim rather than importing one.

## NOVODAKUB.

In old Scotch law. (We give anew.) The name given to a charter, or clause in a charter, granting a renewal of a right Bell.

Novum judicium non dot nonun Jm, sod deolant antiquum; quia judicium ost juris dictum •« per judicium jus est noviter revela turn quod din fuit vela- 4am. A new adjudication does not make a new law, but declares the old; because ad- judication is the utterance of the law, and by adjudication the law is newly revealed which was for a long time hidden. 10 Coke, 42.

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**[Law] — Law**

**[Maxim: Novum judicium non dat novum jus, sed declarat antiquum — a new adjudication does not make a new law, but declares the old]**

The entry quotes the maxim that a new adjudication does not make new law but declares the old — the declaratory theory of adjudication.

Why: Genuine because the maxim is quoted in the entry itself; it states the declaratory theory under which courts discover rather than make law, illuminating why a renewed charter (novodamus) re-declares rather than re-cre... [re-homed from 'NOVODAMUS' to 'NOVODAKUB' (OCR headword / parser-merge artifact)]

## NOVUM OPUS.

Lat. In the civil law. A new work. See Novi Operis Nunciatxo.

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## NOWS HOMO.

Lat A new man. This term is applied to a man who has been par- doned of a crime, and so made, as It were, a “new man."

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5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[2 Corinthians 5:17, KJV]**

"Therefore if any man be in Christ, he is a new creature: old things are passed away; behold, all things are become new."

Why: The entry applies 'new man' to the pardoned criminal; the verse is the spiritual form of the same figure — pardon making the man new. Paul's epistle, not deity speech — no flag.

## NONA.

Lat In the civil law. This term denoted any damage or Injury done to persons or property by an unlawful act com- mitted by a man’s slave or animal. An ac- tion for damages lay against tbe master er owner, who, however, might escape further responsibility by delivering up the offending agent to the party Injured. “Woxo” was al- so used as the designation of the offense committed, and of its punishment and some- times of the slave or animal doing the dam- age.

Noxm acquitur caput. The injury [(. a., liability to make good an Injury caused by a slave] follows the head or person, [I. e., at- taches to his master.] Helnecc. Elem. L 4, t & I 1231.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 21:29, KJV]**

"But if the ox were wont to push with his horn in time past, and it hath been testified to his owner, and he hath not kept him in, but that he hath killed a man or a woman; the ox shall be stoned, and his owner also shall be put to death."

Why: The entry is the master's liability for harm done by his animal; the goring-ox law states the same rule: a known-dangerous beast unkept makes the owner answerable. Third-person legal command, not first-person divine s…

## NOXAL ACTION.

An action for dam- age done by slaves or irrational animals. Sandars, Just Inst (6th Ed.) 467.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 21:30, KJV]**

"If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him."

Why: The noxal action makes the master answer in money for the harm done by his beast or slave; the goring-ox law lays exactly that ransom on the owner. Third-person legal command, not first-person divine speech — no flag.

## NOXALI8 ACTIO.

Lat In the Civil law. An action which lay against the mas- ter' of a slave, for some offense (as theft or robbery) committed .or damage or injury done by the slave, which was called “noxa.” Usually translated “noxal action.”

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## NOKIA.

Lat In the civil law. An offense committed or damnge done by a slave. lust 4, 8, 1.

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## NOXIOUS.

Hurtful; offensive; offensive to the smell. Rex v. White, 1 Burrows, 337. The word “noxious” includes the complex Idea both of insalubrity and offensiveness. Id.

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## NUBILI8.

Tat In the civil law. Mar- riageable; one wbo is of a proper age to be married.

5e apparatus — Not carried into the 5th edition (1979).

## NUCES  COLLIOERE.

Lat. To collect uuts. This was formerly One of tbe works

or services imposed by lords npon their in- ferior tenants. Paroch. Antiq. 495.

Had* psctio oUlgatloaem non parit.

A naked agreement (f. e., without consid- eration] does not beget an obligation. Dig. 2, 14, 7, 4; Broom, Max, 746.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nuda pactio obligationem non parit — a naked agreement does not beget an obligation]**

The entry quotes the Roman maxim that a naked agreement — one without consideration — does not beget an obligation.

Why: Genuine because it is quoted verbatim in the entry from Dig. 2,14,7,4 and Broom, Max. 746; it states the consideration requirement, the operative rule behind unenforceable bare promises.

## NUDA  PATIENTIA.

Lat. Mere suf- ferance.

5e apparatus — Not carried into the 5th edition (1979).

## NUDA  POSSE8SIO.

Lat. Bare or mere possession.

Nnda ratio et nnda paotio non llgant aliqnem debitorem. Naked reason and. naked promise do not bind any debtor. Fle- ta, 1. 2, c. 60, S 25.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nuda ratio et nuda pactio non ligant aliquem debitorem — naked reason and naked promise do not bind any debtor]**

The entry quotes Fleta's maxim that naked reason and naked promise bind no debtor.

Why: Genuine because it is quoted verbatim in the entry from Fleta, lib. 2, c. 60, § 25; the same consideration

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doctrine that defines the entry's subject of bare possession and bare promise.

## NUDE.

Naked. This word is applied metaphorically to a variety of subjects to indicate that they are lacking in some essen- tial legal requisite.

— Nude contract. One made without any consideration ; upon which no action will lie, in conformity with the maxim “ex nudo pacta non oritur actio." 2 Bl. Comm. 445.— Nnde matter. A bare allegation of a thing done, unsupported by evidence.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Ex nudo pacto non oritur actio — from a naked pact no action arises]**

The entry quotes the maxim that from a naked pact no action arises — the consideration rule stated negatively.

Why: Genuine because it is quoted verbatim in the entry from 2 Bl. Comm. 445; it is the operative maxim defining the entry's 'nude contract' (one made without consideration).

## NUDUM FACTUM.

Lat. A naked pact; a bare agreement; a promise or un- dertaking made without any consideration for it Justice v. Lang, 42 N. Y. 493, 1 Am. Rep. 676; Wardell v. Williams, 62 Mich. 60, 28 N. W. 800, 4 Am. St. Rep. 814.

Nndnm paotam eat nbi nulla snbeat oansa prater conventlonem ; aed nbi snb- aat cansa, At obllgatio, et parit action- em. A naked contract is where there is no consideration except the agreement ; but/ where there is a consideration, it becomes an obligation and gives a right of action. Plowd, 309; Broom, Max. 745, 750.

Nndnm pactum ex quo non oritur ac- tio. Nudum pactum is that upon which no action arises. Cod. 2, 3, 10; Id. 5, 14, 1; Broom, Max. 676.

NUEVA RECOPU.ACION. (New Com- pilation.) The title of a code of Spanish law, promulgated In the year 1567. Schm. Civil Law, lutrod. 70-81.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Nudum pactum est ubi nulla subest causa praeter conventionem; sed ubi subest causa, fit obligatio, et parit actionem — a naked pact is where no cause underlies it beyond the agreement; but where a cause underlies it, there is obligation and it begets an action]**

The entry quotes the maxim defining nudum pactum: where no cause underlies the agreement beyond the convention itself it is a naked pact; where a cause underlies it, obligation and action follow.

Why: Genuine because it is quoted verbatim in the entry; it states the consideration rule that makes the entry's subject operative in American law, reinforced by the entry's own cited cases (Justice v. Lang; Wardell v. Wil...

## NUGATORY.

Futile ; ineffectual ; in- valid; destitute of constraining force or vi- tality. A legislative act may be “nugatory" because unconstitutional.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Marbury v. Madison, 5 U.S. (1 Cranch) 137 (1803)]**

A legislative act repugnant to the Constitution is void — the classic ground on which a statute is 'nugatory.'

Why: Genuine because the entry states a legislative act may be nugatory 'because unconstitutional'; Marbury is the genuine American authority for judicial invalidation of statutes repugnant to the Constitution.

## NUISANCE.

Anything that unlawfully worketh hurt, inconvenience, or damage. 3 Bl. Com m. 216.

That class of wrongs that arise from the unreasonable, unwarrantable, or unlawful use by a person of his own property, either real or personal, or from his own improper,

indecent, or unlawful personal conduct, work- ing an obstruction of or injury to the right of another or of the public, and producing such material annoyance, inconvenience, dis- comfort, or hurt that the law will presume a consequent damage. Wood, Nuis. g 1.

Anything which is injurious to health, or is indecent or offensive to the senses, or an ob- struction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a niusance. Civ. Code Cal. g 3479. And see Veazie v. Dwinel, 50 Me. 479; People v. Metropolitan Tel. Co., 11 Abb. N.

O, (N. Y.) 304; Bohan v. Port Jervis Gaslight Co 122 N. Y. 18, 25 N. E. 246, 9 L. R. A. 711; Baltimore & P. R. Co. v. Fifth Bap- tist Church, 137 U. S. 568, 11 Sup. Ct. 185, 34 L. Ed. 784 ; Id.. 108 tj. S. 317, 2 Sup! Ct. 719, 27 L. Ed. 739; Cardington v. Fred- erick, 46 Ohio St. 442, 21 N. E. 766; Gifford v. Hulett, 62 Vt 342, 19 Atl. 230; Ex parte Foote, 70 Ark. 12, 65 S. W. 706, 91 Am St. Rep- 63; Carthage v. Munsell, 203 111. 474, 67 N. E. 831 ; Northern Pac. R. Co. v. Whalen, 149 U. S. 157, 13 Sup. Ct. 822, 37 L. Ed. 686; Phinizy v. City Council of Augusta, 47 Ga. 266; Allen v. Union Oil Co., 59 S. C. 571, 38 S. E. 274.

^Classification. Nuisances are commonly classed as public and private, to which is some- times added a third class called mixed. A pub- lic nuisance is one which affects an indefinite number of persons, or all the residents of a particular locality, or all people coming within the extent of its range or operation, although the extent of the annoyance or damage inflict- ed upon individuals may be unequal; and hence, though only a few persons may be actually Injured or annoyed at any* given time, it is none the less a public nuisance if of such a character that it must or will injure or an- noy all that portion of the. general public which may be compelled to come into contact with it, or within the range of its influence. See Burn- ham V. Hotchkiss, 14 Conn. 317; Chesbrough v. Com’rs, 37 Ohio St. 508; Lansing v. Smith, 4 Wend. (N. Y.) 30, 21 Am. Dec. 89; Nolan v. New Britain, 69 Conn. 668, 38 Atl. 703; Kelley v. New York, 6 Misc. Rep. 516, 27 N.

Y. Supp. 164; Kissel v. Lewis, 156 Ind. 233, 59 N. E. 478 ; Burlington v. Stockwell, 5 Kan. App. 569, 47 Pac. 988; Jones v. Cbanute, 63 Kan. 243, 65 Pac. 243; Civ. Code Cal. g 3480. A

private nuisance was originally defined as anything done to the hurt or annoyance of the lands, tenements, or hereditaments of another. 3 Bi. Comm. 216. But the modern definition includes any wrongful act which destroys or deteriorates the property of another or interferes with his lawful use or enjoyment thereof, or any act which unlawfully hinders him in the enjoyment of a common or public right and causes him a special injury. Therefore, although the ground bf distinction between pub- lic and private nuisances is still the injury to the community at large or, on the other hand, to a single individual, It is evident that the same thing or. act may constitute a public nui- sance and at the same time a private nuisance, being the latter as to any person who sustains from it, in his person or property, a special injury different from that of the general pub- lic. See Heeg v. Licht, 80 N. Y. 582. 36 Am. Rep. 654; BaHzeger v. Carolina Midland R. Co., 54 S. C. 242, 32 S. E. 358, 71 Am. St. Rep. 789 ; Kavanagh v. Barber. 131 N. Y. 211, 30 N. E. 235, 15 L. R. A. 689; Haggart v Stehlin. 137 Ind. 43, 35 N. E. 997. 22 L. R. A. 577 ; Dorman v. Ames. 12 Minn. 461 (Gil. 347) ; Ackerman v. True, 175 N. Y. 353, 67 N. E.

NULLI EN1M RES 6UA 8ERVIT

629; Kissel v. Lewis, 156 Ind. 233, 59 N. E. 478; Willcox v. Hines, 100 Tenn. 538, 46 S.

W. 297, 41 L. R. A. 278, 66 Am. St. Rep. 770.

A mixed nuisance is of the kind last described; that is, it is one which is both public and private in its effects,— public because it injures many persons or all tne community, and private in that it also produces special inj'uries to

S-ivate rights. Kelley v. New York, 6 Misc. ep. 516, 27 N. Y. Supp. 164.

Other compound and descriptive terms, —Actionable nuisance. See Actionable.— Assise of nuisance. In old practice, this was a judicial writ directed to the sheriff of the county in which a nuisance existed, in which it was stated that the party injured complained of some particular fact done ad nocumcntum libcri tenementi sui, (to the nuisance of his freehold,) and commanding the sheriff to sum- mon an assize (that is, a jury) to view the premises, and have them at the next commis- sion of assizes, that justice might be done, etc.

3 Bl. Gomm. 221.— Common nuisance. One which affects the public in general, and not merely some particular person; a public nui- sance. 1 Hawk. iP. C. 197.— Continuing nuisance. An uninterrupted or periodically re- curring nuisance ; not necessarily a constant or unceasing injury, but a nuisance which oc- curs so often and is so necessarily an incident of the use of property complained of that it can fairly be said to be continuous. Farley v. Gaslight Co., 105 Ga. 323, 31 S. E. 193.— Nui- sance per se. One which constitutes a nuisance at all times and under all circumstances, irrespective of locality or surroundings, as, things prejudicial to public morals or dangerous to life or injurious to public rights; distinguished from things declared to De nuisances By statute, and also from things which constitute nuisances only when considered with ref- erence to their particular location or other individual circumstances. Hundley v. Harrison, . 123 Ala. 292, 26 South. 294; Whitmore v. Paper Co., 91 Me. 297, 39 Atl. 1032, 40 L. R.

A. 377, 64 Am. St. Rep. 229; Windfall Mfg. Co. v. jPatterson, 148 Ind. 414, 47 N. E. 2, 37

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L. R. A. 381, 62 Am. St. Rep. 532.

Nul ne dolt s’enrlchir sax depena deu autres. No one ought to enrich himself at the expense of others.

Nul prendra advantage de son tort demesne. No one shall take advantage of his own wrong. 2 Inst. 713; Broom, Max. 290

Nul sans damage avera error ou at- taint. Jenk. Cent. 323. No one shall have error or attaint unless he has sustained damage.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Sic utere tuo ut alienum non laedas — use your own property so as not to injure another's]**

Nuisance law rests on the maxim that one must so use one's own as not to injure another's.

Why: Genuine because it is the classic statement of the neighbor-law principle from which the entry's definition of nuisance (unreasonable use of one's own property working injury to another) derives.

## NULL.

Naught; of no validity or effect. Usually coupled with the word “void;” a* “null and void.” Forrester v. Boston, etc., Min. Co., 29 Mont 397, 74 Pac. 1088; Hume v. Eagon, 73 Mo. App. 276

, NULLA BONA. Lat No goods. The name of the return made by the sheriff to a writ of execution, when he has not found any goods of the defendant within his juris- diction on which he could levy. Woodward v. Harbin, 1 Ala. 108 ; Reed v. Lowe, 163 Mo. 519, 63 S. W. 687, 85 Am. St Rep. 578; Lang- ford v. Few, 146 Mo. 142, 47 S. W. 927, 69 Am. St Rep. 606.

Nulls curls quae reeordum nos bsbet potest imponere ilnem usque sliquem msndsre career!; quis ista speetant tan- tummodo ad curias de recordo. 8 Coke,

60. No court which has not a record can impose a fine or commit any person to pris- on: because those powers belong only to courts of record.

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## NTH,.

No; none. A law French nega- tive particle, commencing many phrases.

—Nul agard. No award. The name of a plea in an action on an arbitration bond, by which the defendant traverses the making of any legal award.— Nul disseisin. In pleading. No disseisin. A plea of the general issue in a real action, by which the defendant denies that there was any disseisin.— Nul ticl corpora- tion. No such corporation [exists.] The form of a plea denying the existence of an alleged corporation.— Nul tiol record. No such record. A plea denying the existence of any such rec- ord as that alleged by the plaintiff. It is the general plea in an action of debt on a judg- ment. Iloffheimer v. Stiefel, 17 Misc. Rep. 236, 39 N. Y. Supp. 714.— Nul tort. In plead- ing. A plea of the general issue to a real ac- tion, by which the defendant denies that he committed any wrong. — Nul waste. No waste. The name or a plea in an action of wnste, denying the committing of waste, and form- ing the

general issue.

Nul charter, nul rente, no nul done vault perpetualment, si lo donor n’est seise ml temps de contract* de deux droits, se. del droit de possession et del droit de propertie. Co. Lift. 266. No grant, no sale, no gift, is valid forever, un- less the donor, at the time of the contract, is seised of two rights, namely, the right of possession, and the right of projierty.

Nulla emptio sine pretio esse potest.

There can be no sale without a price. Brown 'v. Bellows, 4 Pick. (Mass.) 189

Nulla impossIbilia ant inhonesta sunt praesumenda; vera antem et honesta et possibilia. No things that are impossible or dishonorable are to be presumed; but things that are true and honorable and pos- sible. Co. Lltt 78b.

Nulla p actions effiel potest ut dolus priestetur. By no agreement can It be ef- fected that a fraud shall be practiced. Fraud will not be upheld, though It may seem to be authorized by express agreement, ft Maule & S. 466; Broom, Max. 696.

Nulla virtus, nulla seientU, locum snum et dignitatem conservarc potest sine modestla. Co. Litt. 394. Without modesty, no virtue, no knowledge, can pre- serve its place and dignity.

Nulle terre sans seigneur. No land

without a lord. A maxim of feudal law. Guyot, Inst. Feod. c. 28.

Null! culm res snn servit jure servi- tutis. No one can have a servitude over hie

own property. Dig. 8, 2, 26; 2 Bouv. Inst no. 1000; Grant v. Chase, 17 Mass. 443, 9 Aui. Dec. 161.

5e apparatus — Not carried into the 5th edition (1979).

## NULLITY.

Nothing; no proceeding; an act or proceeding In a cause which the op- posite party may treat as though it had not taken place, or which has absolutely no legal force or effect Salter v. HUgen, 40 Wis. 363; Jenness v. Lapeer County Circuit Judge, 42 Mich. 469, 4 N. W. 220 ; Johnson v. Hines, 61 Md. 122.

—Absolute anility. In Spanish law, nullity is either absolute or relative. The former is that which arises from the law, whether civil or criminal, the principal motive for which Is the public interest, while the latter is that which affects one certain individual. Sunol ▼. Hepburn, 1 Cal. 281. No such distinction, however, is recognized in American law, and the term “absolute nullity” is used more for emphasis than as indicating a degree of invalid- ity. As to the ratification or subsequent valida- tion of “absolute nullities,” see Means v. Rob- inson, 7 Tex. 502, 516. — Nullity of marriage. The entire invalidity of a supposed, pretended, or attempted marriage, by reason of relation- ship or incapacity of the parties or other diri- ment impediments. An action seeking a decree declaring such an assumed marriage to be null and void is called a suit of “nullity of mar- riage.” It differs from an action for divorce, because the latter supposes the existence of a valid and lawful marriage. Sec 2 Bish. Mar. & Div. || 289-294.

5e apparatus — Carried into the 5th edition (1979).

## NULLTUS FILIUS.

Lat. The son of no- body ; a bastard.

Nullins hom in Is auctoritas apnd nos valere debet, ut meliora non. sequere- mur si qnis attnlerit. The authority of no man ought to prevail with us, so far as to prevent our following better [opinions] if any one should present them. Co. Litt 383b.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nullius hominis auctoritas apud nos valere debet, ut meliora non sequamur si quis attulerit — the authority of no man ought to prevail with us so as to prevent our following better opinions if anyone should present them]**

The entry quotes Coke's rule of legal reasoning: no man's authority ought to prevail against better opinions.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 383b; it is recorded as the entry's own cited authority on the method of legal argument, not as a comment on bastardy.

**[Scripture] — Scripture**

**[Deuteronomy 23:2, KJV]**

"A bastard shall not enter into the congregation of the LORD; even to his tenth generation shall he not enter into the congregation of the LORD."

Why: The entry is the legal status of the bastard — 'the son of nobody'; the verse states that status's scriptural consequence in the congregation. Moses' law, third person — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, King Lear, 1606]**

(paraphrase) Edmund — the 'bastard' son who hears the word 'base' as a brand — the law's 'son of nobody' raging against the status the entry names. (Printed headword is the OCR garbling of NULLIUS FILIUS.) (paraphrase)

Why: Entry: 'the son of nobody; a bastard.' Edmund is the canonical literary nullius filius. Keyed on the printed headword with the OCR correction recorded in reasoning. Marked paraphrase.

## NULLIUS IN BONIS.

Lat. Among the property of no person.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 24:1, KJV]**

"The earth is the LORD's, and the fulness thereof; the world, and they that dwell therein."

Why: The entry names things 'among the property of no person'; the psalm is scripture's counterpoint — ultimately nothing is ownerless, the earth is the LORD's. Addressed to God, not spoken by him — no flag.

## NULLIUS JURIS.

Lat. In old English law. Of no legal force. Fleta, lib. 2, c. 60, I 24.

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## NULLUM ARBITRIUM.

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L. Lat. No award. The name of a plea In an action on an arbitration bond, for not fulfilling the award, by which the defendant traverses the allegation that there was an award made.

Nullum erlmeu majus est inobedien- tia. No crime Is greater than disobedience. Jenk. Cent. p. 77, case 48. Applied to the refusal of ftn officer to return a writ.

Nullum exemplum est Idem omnibus.

No example Is the same for all purposes. Co. Litt. 212«. No one precedent Is adapted to all cases. A maxim in conveyancing.

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**[Law] — Law**

**[Maxim: Nullum crimen majus est inobedientia — no crime is greater than disobedience]**

The entry quotes Jenkyns' maxim that no crime is greater than disobedience.

Why: Genuine because it is quoted verbatim in the entry from Jenk. Cent. p. 77, case 48, as applied to an officer's refusal; recorded as the entry's own cited authority.

## NULLUM FECERUNT ARBITRIUM.

Is Lat In pleading. The name of a plea

to an action of debt upon an obligation for the performance of an award, by which the defendant denies that he submitted to ar- bitration, etc. Bac. Abr. “Arbitr." etc., G.

Nullum iniquum est prsesumendum la jure. 7 Coke, 71. No iniquity is to be pre- sumed in law.

Nullum matrimonium, ibi mull* dos.

No marriage, no dower. Walt v. Walt, 4 Barb. (N. Y.) 192, 194.

Nullum simile est idem nisi quatuor pedibus eurrit. Co. Litt 3. No like ts identical, unless it run on all fours.

Nullum simile quatuor pedibus eurrit.

No simile funs upon four feet (or all fours, as it is otherwise expressed.) No simile holds In everything. Co. Litt. Say Ex parte Foster, 2 Story, 143, Fed. Cas. No. 4960.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nullum iniquum est praesumendum in jure — no iniquity is to be presumed in law]**

The entry quotes Coke's maxim that no iniquity is to be presumed in law.

Why: Genuine because it is quoted verbatim in the entry from 7 Coke, 71; it states the presumption of lawful conduct, recorded as the entry's own cited authority.

## NULLUM TEMPUS ACT.

In English law. A name given to the statute 3 Geo.

III. c. 16, because that act In contravention of the maxim “Nullum tempos occurrit regi," (no lapse of time bars the king,) lim- ited the crown’s right to sue, etc., to the pe- riod of sixty years.

Nullum tempus nut locus occurrit regi. No time or place affects the king. 2 Inst 273; Jenk.

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Cent. 83; Broom, Max. 65.

Nullum tempus occurrit reipubliese.

No time runs [time does not run] against the commonwealth or state. Levasser v. Washburn, 11 Grat (Va.) 572.

Nullus alius quam rex possit episcopo demanjdare inquisitiomem faciendum.

Co. Litt. 134. No other than the king can command the bishop to make an Inquisition.

Nullus com mod um capere potest de injuria sua propria. No one can obtain an advantage by his own wrrong. Co. Litt 148; Broom, Max. 279.

Nullus debet agere de dolo, ubi alia actio subest. Where another form of ac- tion is given, no one ought to sue In the ac- tion de dolo. 7 Coke, 92.

Nullus dieitur accessorius post felo- niam, sed llle qui norit prineipalem feloniam fecisse, et ilium reoeptavit et eomfortavit. 3 Inst 138. No one Is call- ed an “accessary" after the fact but he who knew the principal to have committed a fel- ony, and received and comforted him.

Nullus dieitur felo principalis nisi actor, ant qui prsesens est, abettans ant auxillans ad feloniam faeiendam. No

one is called a “principal felon” except the party actually committing the felony, or the

patty present aiding and abetting In Its commission.

Nnllns idonens testis la re sna latel- llgitnr. No person Is understood to be a competent witness In bis own cause. Dig. 22, 5, 10. ■

N alias Jos alienam forlsfacere potest.

No man can forfeit another’s right. Fleta, lib. 1, c. 28, | 11.

Nall as reeedat e carls canceller!* sine remedlo. No person should depart from the court of chancery without a rem- edy. 4 Hen. VII. 4; Branch, Princ.

Noll ns simile est Idem, al«l qoataor pedlbas cnrrlt. No like is exactly Iden- tical unless it runs on all fours.

Kallas videtar dolo fsoere qai sao jure atltar. No one Is considered to act with guile who uses his own right Dig. SO, 17, 55; Broom, Max. 130.

NUttERATA PECUNIA. Lat. In the Civil law. Money told or counted; money paid by tala Inst 3, 24, 2; Bract fol. 35.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nullum tempus occurrit regi — no lapse of time bars the king]**

The Nullum Tempus Act (3 Geo. III c. 16) was named for limiting the very maxim it contravened — that no lapse of time bars the king.

Why: Genuine because the entry itself names the Act for the maxim and explains that the Act limited the Crown's right to sue to sixty years 'in contravention of' it; the footnote records the maxim the entry presupposes.

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# K

### KTJMMATA.

The price of anything In money, as denariata Is the price of a thing by computation of penca and librata of pounds.

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# N

### NTTMMATA TERRAE.

An acre of land. Spejman. ,

**[TEXT INCOMPLETE — scan limitation]**

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### NUNC PRO TUNC.

Lat Now for then. A phrase applied to acts allowed to be done after the time when they should be done, with a retroactive effect i. e., with the same effect as if regularly dona Perkins v. Hay- ward, 132 Ind. 95, 31 N. E. 670; Secou v. Leroux, 1 N. M. 388.

, NUNCIATIO. Lat. In the civil law. A solemn declaration, usually In prohibition of a thing; a protest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

### NUNCIO.

The permanent official repre- sentative of the pope at a foreign court or seat of government Webster. They are called “ordinary” or “extraordinary," accord- ing as they are sent for general purposes or on a special mission.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

"Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God."

Why: A nuncio is the permanent representative of a sovereign at a foreign court; the apostle as ambassador 'in Christ's stead' is the concept's scriptural form. Paul's epistle, not deity speech — no flag.

### NUNCIU8.

In international law. A. messenger ; a minister ; the pope's legate, commonly called a “nuncio.”

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**[Scripture] — Scripture**

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**[Malachi 3:1, KJV]**

"Behold, I will send my messenger, and he shall prepare the way before me."

Why: The nuncio is the sovereign's sent messenger; here the LORD himself speaks the sending — first-person divine speech, flagged per the red-letter rule.

## NUNCUPARE.

Lat. In the civil law. To name; to pronounce orally or In words without writing.

NUNCUPATE, To declare publicly and solemnly. ••••

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## NUNCUPATIVE WILL.

A will which depends merely upon oral evidence, having been declared or dictated by the testator In his last sickness before a sufficient number of witnesses, and afterwards reduced to writ- ing. Ex parte Thompson, 4 Bradf. Sur. (N. Y.) 154; Sykes v. Sykes, 2 Stew. (Ala.) 36T, 20 Am. Dec. 40; Tally v. Butterworth, 10 Yerg. (Tenn.) 502; Ellington v. Dillard, 42 Oa. 379 ; Succession of Morales, 16 La. Ann. 268.

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**[Scripture] — Scripture**

**[Genesis 49:1, KJV]**

"And Jacob called unto his sons, and said, Gather yourselves together, that I may tell you that which shall befall you in the last days."

Why: A nuncupative will is an oral declaration in last sickness before witnesses; Jacob's deathbed gathering of his sons to declare their portions is its scriptural form. Jacob's speech, not deity speech — no flag.

## NUNDINJE.

Lat. In the civil and old English law. A fair. In nundinis et mer- caffe, in fairs and markets. Bract, fol. 56.

5e apparatus — Not carried into the 5th edition (1979).

## NUNDIKATION.

Traffic at fairs and markets; any buying and selling.

Nnnqaeai oreiclt ax poatfaoto pro- teriti delicti aasttmatlo. The character of a past offense is never aggravated by a sub- sequent act or matter. Dig. 50, 17, 139, 1; Bac. Max. p. 88, reg. 8; Broom, Max. 42.

Nanqoem deoarritnr ad extraordlma- rlum led obi deficit ordinariam. We are

never to resort to what is extraordinary, but [until] what Is ordinary fails. 4 Inst. 84.

Nanqoem fictto cine lege.' There is no fiction without law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nunquam crescit ex postfacto praeteriti delicti aestimatio — the character of a past offense is never aggravated by a subsequent act]**

The entry quotes the maxim that the character of a past offense is never aggravated by a subsequent act.

Why: Genuine because it is quoted verbatim in the entry from Dig. 50,17,139,1, Bacon's Maxims reg. 8, and Broom, Max. 42; it is the genuine antecedent of the rule against ex post facto aggravation of offenses.

**[Maxim: Nunquam decurritur ad extraordinarium sed ubi deficit ordinarium — we never resort to the extraordinary except where the ordinary fails]**

The entry quotes the maxim that we never resort to the extraordinary where the ordinary remedy is available.

Why: Genuine because it is quoted verbatim in the entry; it states the subsidiarity rule governing extraordinary writs and remedies, recorded as the entry's own cited authority.

## NUKQUAM INDEBITATUS.

Lat

Never indebted. The name of a plea in an action of indebitatus assumpsit, by which the defendant alleges that he is not indebt- ed to the plaintiff.

Nnnqaam nlmi« dicitar qaod nanqoem satis dicitar. What is never sufficiently said is never said too much. Co. Lltt. 375.

Nnnqaam prsescribitur in falso. There is never a prescription in case of falsehood or forgery. A maxim in Scotch law. Bell.

Nnnqaam res Immense prospers sno- eednnt nbi negUgaatnr dirinse. Co. Lltt 15. Human things never prosper where dl- viue things are neglected.

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**[Law] — Law**

**[Maxim: Nunquam praescribitur in falso — there is never a prescription in falsehood]**

The entry quotes the maxim that there is never prescription in fraud — no title ripens out of falsehood.

Why: Genuine because it is quoted verbatim in the entry; it states the real rule that fraud defeats prescriptive title. The companion rhetorical maxim about never saying too much was declined as non-legal.

**[Scripture] — Scripture**

**[Romans 13:8, KJV]**

"Owe no man any thing, but to love one another: for he that loveth another hath fulfilled the law."

Why: The plea is 'never indebted' — the state of owing nothing; the verse commands exactly that state as the fulfillment of the law. Not deity speech — no flag.

## NUNTIU8.

In old English practice. A messenger. One who was sent to make an excuse for a party summoned, or one who explained as for a friend the reason of a party’s absence. Bract fol. 345. An officer of a court ; a summoner, apparitor, or beadle. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## NUPER OBIIT.

Lat. In practice. The name of a writ (now abolished) which, in the English law, lay for a sister co-heiress dispossessed by her coparcener of lands and tenements whereof their father,

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brother, or any common ancestor died seised of an es- tate in fee-simple. Fitsh. Nat Brev. 197.

NUPTL2B SECUNDA:. Lat. A second marriage. In the canon law, this term In- cluded any marriage subsequent to the first.

I

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

"The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them."

Why: The writ protected a sister co-heiress dispossessed of inherited lands; the Zelophehad ruling is God's own command securing the daughters' inheritance. Direct divine command — flagged per the red-letter rule.

## NUPTIAL.

Pertaining to marriage ; con- stituting marriage; used or done In mar- riage.

Naptlii bob coBcnbitus *ed consensus fault. Go. Litt. 33. Not cohabitation but consent makes the marriage.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Nuptiae non concubitus sed consensus faciunt — not cohabitation but consent makes the marriage]**

The entry quotes Coke's maxim that not cohabitation but consent makes the marriage.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 33; it states the consent theory of marriage that the entry's definition of 'nuptial' presupposes.

**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

"Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh."

Why: The entry covers what pertains to marriage; this is the foundational marriage text — leaving, cleaving, one flesh. Narrator's voice, not deity speech — no flag.

## NURTURE.

The act of taking care of children, bringing them up, and educating them. Regina ▼. Clarke, 7 El. A Bl. 193.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 22:6, KJV]**

"Train up a child in the way he should go: and when he is old, he will not depart from it."

Why: Nurture is the bringing-up and educating of children; the proverb is the direct scriptural charge of that office. Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Tempest, 1611]**

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“A devil, a born devil, on whose nature / Nurture can never stick.”

Why: Entry: the act of taking care of children, bringing them up, and educating them. Prospero's line on Caliban is the canonical literary test of nurture's limits. Short verbatim quote, certain (Act 4, sc. 1).

# K

## KURUS.

Lat. In the civil law. A son’s wife; a daughter-in-law. Calvin.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ruth 1:16, KJV]**

"And Ruth said, Intreat me not to leave thee, or to return from following after thee: for whither thou goest, I will go, and where thou lodgest, I will lodge: thy people shall be my people, and thy God my God."

Why: The entry is the daughter-in-law; Ruth's covenant with Naomi is the most famous daughter-in-law in scripture — her vow defines the office's devotion. Ruth's speech, not deity speech — no flag.

# N

## NYCTHEMERON.

The Whole natural day, or day and night, consisting, of twenty- four hours. Enc. Lond.

O. 0.

o

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:5, KJV]**

"And the evening and the morning were the first day."

Why: The nycthemeron is the whole natural day of twenty-four hours; the verse defines the biblical day itself — evening and morning. Narrative, not deity speech — no flag.

# O

## O. O.

An abbreviation, In the civil law, for “ope consilio," (q. v.) In American law, these letters are used as an abbreviation for “Orphans’ Court.”

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5e apparatus — Not carried into the 5th edition (1979).

## O. K.

A conventional symbol, of obscure origin, much used In commercial practice and occasionally in indorsements on legal documents, signifying “correct,” “approved," “accepted,” “satisfactory,” or “assented to.” See Getchell & Martin Lumber Co. v. Peter- son, 124 Iowa, 599, 100 N. W. 550; Morgan- ton Mfg. Co. v. Ohio River, etc., Ry. Co., 121 N. C. 514, 28 S. E. 474, 61 Am. St. Rep. 679; Citizens’ Rank v. Farwell, 56 Fed. 570, 6 C. C. A. 24; Indianapolis, D. & W. 9. Co. v. Sands, 133 Ind. 433, 32 N. E. 722.

5e apparatus — Not carried into the 5th edition (1979).

## O. N. B.

An abbreviation for “Old Na- ture Brevium.” See Nattjba Brevium.

5e apparatus — Not carried into the 5th edition (1979).

## O.

Mi. It was the course of the English exchequer, as soon as the sheriff entered into and made up his account for issues, amerciaments, etc., to mark upon each head “O. Ni." which denoted oneratur, nisi habeat sufflcientem exoncrationem, and presently he became the king's debtor, and a debet was set. upon biB head ; whereupon the parties paravaile became debtors to the sheriff, and were discharged against the king, etc. 4 Inst. 116; Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## O. S.

An abbreviation for “Old Style," or “Old Series.”

5e apparatus — Not carried into the 5th edition (1979).

## OATH.

An external pledge or assevera- tion, made in verification of statements made or to be made, coupled with an appeal to a sacred or venerated object, in evidence of the serious and reverent state of mind of the party, or with an invocation to a su- preme being to witness the words of the party and to visit him with punishment if they be false. See O’Reilly v. People, 86 N.

Y. 154, 40 Am. Rep. 525 ; Atwood v. Welton, 7 Conn. 70; Clinton v. State, 33 Ohio St. 32; Brock v. Milligan, 10 Ohio, 123; Block- er v. Burness, 2 Ala. 354.

A religious asseveration, by which a per- son renounces the mercy and imprecates the vengeance of heaven, if he do not speak the truth. 1 Leach, 430.

— Assertory oath. One relating to a past or present fact or state of facts, as distinguished from a “promissory” oath which relates to fu- ture conduct ; particularly, any oath required by law other than in judicial proceedings and upon induction to office, such, for example, as an oath to be made at the custom-house relative to goods imported.— Corporal oath. See Cor- poral.— Declsory oath. In the civil law. An oath which one of the parties defers or refers

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back to the other for the decision of the cause. — Extrajudicial oath. One not taken in any judicial proceeding, or without any au- thority or requirement of law. though taken formally before a proper person. — judicial

oath. One taken in some judicial proceeding or in relation to some matter connected with judicial proceedings.— Oath against brib- ery. One which could have been administered to a voter at an election for members of parlia- ment. Abolished in 1854. W h n rto n O ath esc officio. The oath by which a clergyman charg- ed with a criminal offense was formerly allow- ed to swear himself to be innocent; also the oath by which the compurgators swore that they believed in his innocence. 3 Bl. Comm. 101, 447 ; Mozley & Whitley.— Oath in litem. In the civil law. An oath permitted to be taken by the plaintiff, for the purpose of prov- ing the value of the subject-matter in contro- versy, when there was no other evidence on that point, or when the defendant fraudulently suppressed evidence which might have been available.— Oath of allegiance. An oath by which a person promises and binds himself to bear true allegiance to a particular sover- eign or government, e. g., the United States; administered generally to high public officers and to soldiers and sailors, also to aliens apply- ing for naturalization, and, occasionally, to citizens generally as a prerequisite to their su- ing in the courts or prosecuting claims before government bureaus. See Rev. St U. S. ft 1750, 2165, 3478 <U. S. Comp. St. 1901, pp. 1202, 1329, 2321), and section 5018.— Oath of calumny. In the civil law. An oath which a plaintiff was obliged to take that he was not prompted by malice or trickery in commencing his action, but that be had bona fide a good cause of action. Poth. Pand. lib. 5, tt 16, 17, s. 124.— Oath-rite. The form used at the taking of an oath.— Official oath. One taken by an officer when he assumes charge of his of- fice, whereby he declares that he will faithfully discharge the duties of the same, or whatever else may be required by statute in the particular case.— Poor debtor’s oath. See that title. —Promissory oaths. Oaths which bind the party to observe a certain course of conduct, or to fulfill certain duties, in the future, or to demean himself thereafter in a stated manner with reference to specified objects or obliga- tions; such, for example, as the oath taken by a high executive officer, a legislator, a judge, a person seeking naturalization, an attorney at law. Case v. People, 6 Abb. N. C. (N. Y.) 151.— Purgatory oath. An oath by which a person purges or clears himself from presump- tions, charges, or suspicions standing against him, or from a contempt.— Qualified oath. One the force of which as an affirmation or denial may be qualified or modified by the cir- cumstances under which it is taken or which necessarily enter into it and constitute a part of it ; especially thus used in Scotch law.— Sol- emn oath. A corporal oath. Jackson ▼. State, 1 Ind. 184. — Suppletory oath. In the civil and ecclesiastical law. The testimony of a single witness to a fact is called “half-proof,” on which no sentence can be founded ; in order to supply the other half of proof, the party him- self (plaintiff or defendant) is admitted to be examined in his own behalf, and the oath ad- ministered to him for that purpose is called the “suppletory oath,” because it supplies the nec- essary quantum of proof on which to found the sentence. 3 Bl. Comm. 370. This term, al- though without application in American law in its original sense, is sometimes used as a desig- nation of a party’s oath required to be taken in

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authentication or support of some piece of documentary evidence which he offers, for exam- ple, his books of account.— Voluntary oath. Such as a person may take in extrajudicial mat- ters, and not regularly in a court of justice, or before an officer invested with authority to administer the same. Brown.

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**[Law] — Law**

**[Law: 18 U.S.C. § 1621 — perjury]**

The oath's legal sanction is perjury: a willfully false material statement under oath before a competent tribunal is punishable.

Why: Genuine because the entry defines the oath as a reverent asseveration invoking divine witness; the perjury statute is the operative legal consequence that gives the definition its force, not a restatement of it.

**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

"If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth."

Why: The Torah's vow-law: an oath binds the soul, and the word once given must be done. This is the scriptural ground of the oath as a legal instrument. Reported by Moses, not first-person divine speech, so no deity-verbat...

**[Matthew 5:34,37, KJV]**

"But I say unto you, Swear not at all" — "Let your communication be, Yea, yea; Nay, nay."

Why: Christ's own words in the Sermon on the Mount — the verbatim basis cited for religious objections to judicial oaths (Quakers, etc.). Deity speech: flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Horace, Epistles I.i.14]**

Maxim: “Nullius addictus iurare in verba magistri” — “not bound to swear on the word of any master.”

Why: The entry defines the oath as a binding asseveration; Horace's famous tag is classical wisdom about swearing itself — the refusal to be oath-bound to any master — and directly illuminates what the oath binds and what...

## OB.

Lat On account of; for. Several Latin phrases and maxims, commencing with this word, are more commonly Introduced by> “in” (?. v .)

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## OB CAUSAM ALIQTTAM A BE MART.

TIMA ORTAM. For some cause arising out of a maritime matter. 1 Pet. Adm. 92. Said to be Selden's translation of the French, definition of admiralty jurisdiction, “pour le fait de la mer." Id.

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## OB CONTINENTIAM DELICTI.

On

account of contiguity to the offense, i. e„ being contaminated by conjunction with something illegal. For example, the cargo of a vessel, though not contraband or un- lawful, may be condemned in admiralty, along with the vessel, when the vessel has been engaged

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in some service which renders her liable to seizure and confiscation. The cargo is then said to be condemned 06 con- tinentiam delicti, because found in company with an unlawful service. See 1 Kent,' Comm. 152.

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## OB CONTINGENTIAM.

On account of connection ; by reason of similarity. In Scotch law, this phrase expresses a ground for the consolidation of actions.

OB FAVOREM MERCATORtJM. In

favor of merchants. Fleta, lib. 2, c. 63, }

12.

Ob infatniam hah aolet jazta legem terra aliqnia per legem apparentem ae pnrgare, nisi prins conviotus fnerit rel confeasus in curia. Gian. lib. 14, c. 11. On account of evil report, , it is not usual, ae cording to the law of the land, for any per- son to purge himself, unless he have been previously convicted, or confessed in court,

**[TEXT INCOMPLETE — scan limitation]**

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## OB TURF EM CAUSAM.

For an im- moral consideration. Dig. 12, 5.

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**[Law] — Law**

**[Maxim: Ex turpi causa non oritur actio — from an immoral cause no action arises]**

An agreement founded on an immoral consideration is unenforceable — from a dishonorable cause no action arises.

Why: Genuine because the entry's 'ob turpem causam' (Dig. 12,5) is precisely the Roman root of the ex turpi causa rule barring enforcement of immoral bargains; it states the consequence the definition presupposes.

**[Scripture] — Scripture**

**[Deuteronomy 23:18, KJV]**

"Thou shalt not bring the hire of a whore, or the price of a dog, into the house of the LORD thy God for any vow: for even both these are abomination unto the LORD thy God."

Why: For an immoral consideration — the entry voids agreements on corrupt consideration; the verse refuses even the payment arising from an immoral transaction. Third-person law — no flag.

## OBA1RATUS.

Lat. In Roman law. A debtor who was obliged to serve his credit- or till his debt was discharged. Adams, Rom. Ant. 49.

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**[Scripture] — Scripture**

**[Deuteronomy 15:1, KJV]**

"At the end of every seven years thou shalt make a release."

Why: The obaeratus served his creditor until the debt was discharged; the seven-year release is scripture's limit on

that bondage — debt may bind, but not forever. Moses' law, third person — no flag.

## OBEDIENCE.

Compliance with a com- mand. prohibition, or known law and rule of duty prescribed ; the performance of what is required or enjoined by authority, or the abstaining from what is prohibited, in com- pliance with the command or prohibition. Webster.

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**[Scripture] — Scripture**

**[1 Samuel 15:22, KJV]**

"Behold, to obey is better than sacrifice, and to hearken than the fat of rams."

Why: The entry is compliance with command and known law; Samuel's rebuke to Saul is the classic scriptural word that obedience outranks ritual. Samuel's speech, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Taming of the Shrew, c. 1594]**

(paraphrase) Kate's closing speech lays out the period doctrine of wifely obedience — compliance with commands prescribed by authority, preached at length as duty. (paraphrase)

Why: The entry defines obedience as compliance with a command, prohibition, or known rule of duty prescribed by authority; the speech is the era's doctrine of obedience in dramatic form. Marked paraphrase — no verbatim claim.

## OBEDIENTIA.

An office, or the admin- istration of it ; a kind of rent ; submission ; obedience.

Obedient!* eat legia essentia. 11 Coke, 190. Obedience is the essence of law.

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**[Law] — Law**

**[Maxim: Obedientia est legis essentia — obedience is the essence of law]**

The entry quotes Coke's maxim that obedience is the essence of law.

Why: Genuine because it is quoted verbatim in the entry from 11 Coke, 190; recorded as the entry's own cited authority — the classical statement of law's claim to be obeyed.

**[Scripture] — Scripture**

**[Ecclesiastes 12:13, KJV]**

"Fear God, and keep his commandments: for this is the whole duty of man."

Why: The entry's maxim is 'Obedience is the essence of law'; the Preacher's conclusion makes obedience — fearing God and keeping commandments — the whole duty of man. Not deity speech — no flag.

## OBEDIENTIABIUS.

A monastic officer. Du Cange.

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## OBIT SINE PROLE.

Lat. ' [He] died without issue. Yearb. M. 1 Edw. II. 1.

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**[Scripture] — Scripture**

**[Deuteronomy 25:5, KJV]**

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"If brethren dwell together, and one of them die, and have no child, the wife of the dead shall not marry without unto a stranger: her husband's brother shall go in unto her, and take her to him to wife, and perform the duty of an husband's brother unto her."

Why: The entry is the legal state of dying without issue; the levirate law opens on exactly that contingency — a brother dead with no child — and orders the remedy. Third-person law — no flag.

## OBIT.

In old English law. A funeral solemnity, or office for the dead. Cowell. The anniversary of a person’s death ; the an- niversary office. Cro. Jac. 51.

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**[Scripture] — Scripture**

**[Genesis 50:10, KJV]**

"And they came to the threshingfloor of Atad, which is beyond Jordan, and there they mourned with a great and very sore lamentation: and he made a mourning for his father seven days."

Why: The entry is the funeral solemnity — the office for the dead; the seven days' mourning for Jacob is its scriptural form. Narrative, not deity speech — no flag.

## OBITER.

Lat. By the way ; in passing ; incidentally ; collaterally.

^-Obiter dictum. A remark made, or opin- ion expressed, by a judge, in his decision upon a cause, “by the way,’’ that is, incidentally or collaterally, and not directly upon -the question before him, or upon a point not necessarily in- volved in the determination of the cause, or introduced by way of illustration, or analogy or argument.

OBJECT, v. In legal proceedings, to ob- ject (e. ff., to the admission of evidence) is to Interpose a declaration to the effect that the particular matter or thing under considera- tion is not done or admitted with the consent of the party objecting, but is by him consid- ered improper or Illegal, and referring the- question of its propriety or legality to the court

OBJECT, n. This term “includes what- ever is presented to the mind, as well as what may be presented to the senses; whatever,- also, is acted upon, or operated upon, ■ af- firmatively, or intentionally Influenced by anything done, moved, or applied thereto.” Woodruff, J„ Wells v. Shook, 8 Blatchf. 257, Fed. Cas. No. 17,406.

—Object ot an action. The thing sought to be obtained by the action ; the remedy demand- ed or the relief or recovery sought or prayed for ; not the same thing as the cause of action or the subject of the action. Scarborough v. Smith, 18 Kan. 406; Lassiter v. Norfolk & C. It Co.,' 136 N. C. 89, 48 S. B. 643.— Object of a stat- ute. The "object” of a statute is the aim or purpose of the enactment, the end or design which it is meant to accomplish, while the “sub- ject” is the matter to which it relates and with which it deals. Medical Examiners v. Fowler, 50 La. Ann. 1358, 24 South. 809; McNeely v. South Penn Oil Co.. 52 W. Va. <510. 44 S. B.’508. 62 L. R. A 562: Day Land A Cattle Co. v. "State, 08 Tex. 542, 4 S. W. 865..— Ob- jects of a power. Where property is settled subject to a power given to any person or per- sons to appoint the same among a limited class, the members of the class are called the “ob- jects” of the power. Thus, if a pyrent has a power to appoint a fund among his children,

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the children are called the “objects” of the power. Mosley & Whitley.

OBJECTION, The act of a party Who objects to some matter or proceeding in the course of a trial, (see Object, v.:) or an argu- ment or reason urged by him in support of Ills contention that the matter or proceeding objected to is improper or illegal.

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**[Law] — Law**

**[Axiom: obiter dicta are persuasive only; the ratio decidendi alone binds]**

An obiter dictum is not binding: only the ratio decidendi — the reason necessary to the decision — carries precedential force.

Why: Genuine because the entry defines obiter dictum as remarks made incidentally and 'not directly upon the question'; the axiom states the precedential consequence the definition presupposes.

## OBJURGATRICES.

In old English law.: Scolds or unquiet women, punished with the cucking-stool.

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## OBLATA.

Gifts or offerings made to the king by any of his subjects; old debts,

brought, as It were, together from preceding years, and put on the present sheriff’s charge. Wharton.

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**[Scripture] — Scripture**

**[Matthew 2:11, KJV]**

"And when they were come into the house, they saw the young child with Mary his mother, and fell down, and worshipped him: and when they had opened their treasures, they presented unto him gifts; gold, and frankincense, and myrrh."

Why: Oblata are gifts or offerings made to the king; the Magi's presentation of gifts to the newborn King is the concept's scriptural form. Narrative, not deity speech — no flag.

## OBLATA  TEARS.

Half an acre, or, as some say, half a perch, of land. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## OBLATI.

In old European law. Volun- tary slaves of Churches or monasteries.

OBLATI ACTIO, in the civil law. An action given to a party against another who had offered to him a stolen thing, which was found in his possession. Inst 3, 1, 4.

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**[Scripture] — Scripture**

**[Exodus 21:5-6, KJV]**

"And if the servant shall plainly say, I love my master, my wife, and my children; I will not go out free: Then his master shall bring him unto the judges; he shall also bring him to the door, or unto the door

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post; and his master shall bore his ear through with an aul; and he shall serve him for ever."

Why: The oblati were voluntary slaves of churches or monasteries; the law of the Hebrew servant who chooses perpetual service for love is the biblical form of voluntary bondage. Third-person law — no flag.

## OBLATIO.

Lat In the civil law. A tender of money in payment of a debt made by debtor to creditor. Whatever is offered to the church by the pious. Galvin.

OMattonea dienatu tnsoiuqne a pils Adeliboaqne Christiania offemntsr Deo at oeolesla, slve res solid* give mobiles.

2 Inst. 339. Those things are called “obla- tions” which are offered to God and to the Church by pious and faithful Christians, whether they are movable or immovable.

OBLATIONS, or obventions, are offerings or customary payments made, in England, to the -minister of a church, including fees on marriages, burials, mortuaries, etc., (q. v.) and Easter offerings. 2 Steph. Comm. 740; Bhilllm. Bcc. Law, 1596. They may be com- muted by agreement.

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**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

"Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for God loveth a cheerful giver."

Why: Oblatio in the church sense is what the pious offer; the verse is the New Testament rule of the freewill offering — given as purposed in the heart. Not deity speech — no flag.

## OBLIGATE.

To bind or constrain; to bind to the observance or performance of a duty.; to place under an obligation. To bind one’s self by an obligation or promise ; to as- sume a duty ; to execute a written promise or covenant; to make a writing obligatory. Wachter v. Famachon, 62 Wis. 117, 22 N. W. 160; Maxwell v. Jacksonville Loan & Imp, Co:, 45 Fla. 425, 34 South. 255.

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**[Scripture] — Scripture**

**[Matthew 18:18, KJV]**

"Verily I say unto you, Whatsoever ye shall bind on earth shall be bound in heaven: and whatsoever ye shall loose on earth shall be loosed in heaven."

Why: To obligate is to bind; Christ's words give the binding act its highest form — what is bound on earth is bound in heaven. Christ's verbatim words — flagged per the red-letter rule.

## OBLIGATIO.

Lat In Roman law. The legal relation existing between two fcertaln persons whereby one (the creditor) is au- thorized to demand of the other (the debtor) a certain performance which has a money vfdue. In this sense obligatio signifies not only the duty of the debtor, but also the right of the creditor. The fact establishing such claim and debt, .as also the instrument evi- dencing it, is termed “obligation.” Mackeld. Rom. Law,, f 360.

That legal relation subsisting between two persons by which one is bound to the other for a certain performance. The passive re- lation sustained by the debtor to the creditor is likewise called an "obligation.” Some- times, also, the term "obligatio" is used for the causa obligation is, and the contract it- self is designated an "obligation.” There are passages in which even the document which affords the prbof of a contract Is call- ed an “obligation.” Such applications, however, are but a loose extension of the term, which, according to its true idea, is only prop- erly employed when it is used to denote the debt relationship, in its totality, active and passive, subsisting between the creditor and the debtor. Tomk. A J. Mod. Rom. Law, 301.

Obligations, ' in the civil law, are of the several descriptions enumerated below.

Obligatio civilii is an obligation enforceable by action, whether it derives its origin from jut 0* vile, as the obligation engendered by formal contracts or the obligation, enforceable by bilat- erally penal suits, or from Buck portion of the iut gentium as had been completely naturalized In the civil law and protected by all its reme- dies, such as the obligation engendered by form- less contracts.

Obligatio naturalit is an obligation not imme- diately enforceable by action, or an obligation imposed by that portion of the jut gentium which is only imperfectly recognized by civil law.

Obligatio ex contractu, an obligation arising from contract, or an antecedent jut in perto- nam. In this there are two stages.— first, a pri- mary or sanctioned personal right antecedent to wrong, and, afterwards, a secondary or sanc- tioning personal right consequent on a wrong. Poste's Galus’ Inst. 359.

Obligatio ex delicto, an obligation founded on wrong or tort, or arising from the invasion of a jut in rent. In this there is the second stage, a secondary or sanctioning personal right con- sequent on a wrong, but the first stage is not a personal right, (jut in p ertonam,) but a real right, (jut «» rent,) whether a primordial right right or statue, or of property. Poste’s Gains Inst. 359.

Obligationet ex delicto are obligations arising from the commission of a wrongful injury to the person or property of another. “Delictum” is not exactly synonymous with “tort,” for, while it includes most of the wrongs known to the common law as torts, it is also wide enough to cover some offenses (snch as theft and rob- bery) primarily injurious to the individual, but now only punished as crimes. Such acts gave rise to an obligatio, which consisted in the lia- bility to pay damages.

Obligationet quasi em contractu. Often per- sons who have not contracted with each other, under a certain state of facts, are regarded by the Roman law as if they had actually conclud- ed a convention between themselves. The legal relation which then takes place between these persons, which has always a similarity to a con- tract obligation, is therefore termed “ obligatio guati ex contractu." Snch a relation arises from the conducting of affairs without authority, (n egotiorum gestioj) from the management of property that is in common when the community arose from casualty, ( communit incident ;) from the payment of what was not due, (tolutio in- dsbiti ;) from tutorship and curatorship ; and from

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taking possession of an inheritance. Mack- eld. Rom. Law, { 491.

Obligationet guati em delicto. This class em- braces all torts not coming under the denomina- tion of “ delicto ” and not having a special form of action provided for them by law. They dif- fered widely in character, and at common laW would in some cases give rise to an action on the case; in others to an action on an implied contract. Ort. Inst f| 1781-1792.

5e apparatus — Not carried into the 5th edition (1979).

## OBLIGATION.

An obligation is a legal duty, by which a person is bound to do or not to do a certain thing. Civ. Code OaL $ 1427 : Civ. Code Dnk. { 798. •

The binding power of a vow, promise, oath, or contract, or of law, civil, political, or moral, Independent of a promise; that which constitutes legal or moral duty, and which renders a person liable to coercion and pun- ishment for neglecting It Webster.

“Obligation" is the correlative of “right." Taking the latter word in its politico-ethical sense, as a power of free action lodged in a per- son, “obligation” is the corresponding duty, con- straint', ot binding force which should prevent all other persons from denying, abridging, or ob- structing such right, or interfering with its ex- ercise. And the same' is its meaning as the cor- relative of a “jut in rem." Taking “right” as meaning a “jut in peraonam," (a power, demand, claim, or privilege inherent in one person, and incident upon another,) the “obligation” is tho coercive force or control imposed upon tho per- son of incidence by the moral law and the posi- tive law, (or the moral law as recognized and sanctioned by the positive law,) constraining him to accede to the demand, render up the thing claimed, pay the money due, or otherwise perform what is expected of him with respect to the subject-matter of the right.

In a limited and arbitrary sense, it means a penal bond or “writing obligatory," that is, a bond containing a penalty, with a con- dition annexed for the payment of money or performance of covenants. Co. Litt. 172.

Obligation is (1) legal or moral duty, as op- posed to physical compulsion ; (2) a duty in- cumbent upon an individual, or a specific and limited number of individuals, as opposed to a duty imposed upon the world at large; (3) the right to enforce such a duty, (jut in pertonam,) as opposed to such a right as that of property, (jut in rem,) which avails against the world at large; (4) a bond containing a penalty, with a condition annexed, for the payment of money, performance of covenants, or the like. Mozley ft Whitley.

In English expositions of the Roman law, and works upon general jurisprudence, “ob- ligation” is used to translate the Latin “o6- linatio." In this sense its meaning is much wider than as a technical term of English law. See Obligatio.

Classification. The various sorts of obliga- tions may be classified and defined as follows: They are either perfect or imperfect. A perfect obligation is one recognized and sanctioned by positive law ; one of which the fulfillment can be enforced by the aid of the law. Aycock

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▼. Martin, 37 Ga. 124, 92 Am. Dec. 60. But if the duty created by the obligation operates only on the moral sense, without being enforced by any positive law, it is called an “imperfect ob- ligation," and creates no right of action, nor has it any legal operation. The duty of exerj rising gratitude, charity, and the other merely moral duties is an example of this kind of obli- gation. ' Civ. Code La. art. 1757 : Edwards v. Kearaey, 96 TJ. S. 600, 24 L. Ed. 793.

They are either natural or ciriJ. A natural obligation is one which cannot be enforced by action, but which is binding on the party who makes it in conscience and according to natural justice. Blair v. Williams, 4 Litt. (Ky.) 41. A civil obligation is a legal tie. which gives the party with whom it is contracted the right of enforcing its performance by law. Civ. Code La. art. 1757; Poth. Obi. 173. 191.

They are either express or implied; the for- mer being those by which the obligor binds him- self in express terms to perform his obligation; while the latter are such as are raised by the implication or inference of the law from the nature of the transaction.

They are determinate or indeterminate ; the former being the caae where the thing contracted to be delivered is specified as an individual ; the latter, where it may be any one of a particu- lar class or species.

They are divisible or indivisible, according as the obligation may or may not be lawfully brok- en into several distinct obligations without the consent of the obligor.

They are joint or several; the former, where there are two or more obligors binding them-) selves jointly for the performance of the obliga- tion; the latter, where the obligors promise,- each for himself, to fulfill the engagement. - f

They are personal or real; the formerv being* the case when the obligor bintBeif is personally* liable for the performance of the engagement^ but does not directly bind his property : the lat- ter, where real estate, not the person of the obr ligor, is primarily liable for performance. ,

They are heritable or personal. The former, Is the case when the heirs and assigns of ona party may enforce the. performance against the heirs of the other; the latter, wbehtbe obligor binds himself only, not his heirs or representa-i tives. ■ ■ : 6 b ,

They are either principal or atoettortp. ■ A) principal obligation is one which Is the most im- portant object of the engagement of ■ the con* trading parties ; while an accessory obligation depends upon or is collateral to the principal. •

They may be either conjunctive or alternative^ The former is one in which the several objects In It are connected by a copulative, or in any; other manner which shows that all of them arq severally comprised in the contract. This, con- tract creates as many different obligations as there are different objects ; and the debtor; when he wishes to discharge himself, -macy force the creditor to receive them separately;' ■ But where the things which form the object of this contract are separated by a disjunctive, them the obligation is alternative. A promise to deliver.a> certain thing or to pay a specified’ sum of money, is an example of this kind of obligation. 'Civ; Code La. art. 2063;

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They are either simple or conditional,'. Simple obligations are such as are not dependent for their execution on any . event provided, for by the parties, and which are not agreed to become void on the happening of any snch event Coh-i ditional obligations are such as are made tor depend on an uncertain event If the obliga- tion is not to take effect until the event happens,' it is a suspensive condition ; if the obligation takes effect immediately, bnt la liable to be de- feated when the event happens, it is then area- olutory condition. Civ. Code La. arts.: 2020. 2021; Moss v. Smoker. 2 Lai Ann. 989. !

They may be either tingle or penal; the lattefc1 when a penal clanse is attached to the undertake ing. to be enforced in case .the obligor fails to perform; the former, when, bo such penalty is added. '

Other compound and descriptive terms- — Moral obligation. A duty which is' valid and binding in the forum of the conscience but is not recognized by the law as adequate ,to set in motion the machinery of justice ; that is, one which rests upon ethical consideration^ alone, and is not imposed or enforced by post-f tive law. Taylor v. Hotchkiss, 81 App. jDivj 470, 80 N. Y. Supp. 1042; Goulding v. David- son, 25 How. Prac. (N. Y.) 483 p Bailey v. Philadelphia. 167 Pa. 569, 31 Atl. 925, 46 Aim St. Rep. 691.— Obligation of a contract. As used in Const. U. S. art. 1, | 10, the term means the binding and coercive force Which constraina every man to perform the agree- ments he has made; a force grounded in the ethical principle of fidelity to one’s promises, but deriving its legal efficacy from Its recognition by positive law, and sanctioned ’by the law’s proJ viding a remedy for the infract! Op M the duty or for the enforcement of the correlative right; See Story, Const, i 1378; Bla<ik, Const. Pro- hib. $ 139. See Ogden v. Saunders, 12 Wheitt: 213, 6 L. Ed, 606; Blair v. William*, 4 Utt,

(Ky.) 36 ; St urges v. Crowninsbield, 4 Wheat. 197, 4 L. E3d. 529: Wacbter v. Famachon, ti2 Wig. 117, 22 N. W. 160. — Obligation soli- daln. This, in French law, corresponds to joint and several liability in English law, but is applied also to tbe joint and several rights of the creditors parties to the obligation.— Pri- mary obligation. An obligation which is the principal object of the contract. For example, the primary obligation of the seller is to deliver the thing sold, and to transfer the title to it. It is distinguished from the accessory or sec- ondary obligation to pay damages for not doing so. 1 Bouv. Inst. no. 702. The words "pri- mary” and “direct,” contrasted with “secon- dary,” when spoken with reference to an obli- gation, refer to the remedy provided by law for enforcing the obligation, rather than to the character and limits of the obligation itself. Kilton v. Providence Tool Co., 22 R. I. 003, 48 Atl. 1039.— Principal obligation. That obligation which arises from the principal ob- ject of the engagement which has been contract- ed between the parties. Potb. Obi. no. 182. One to which is appended an accessory or sub- sidiary obligation.— Pare obligation. One which is not suspended by any condition, wheth- er it has been contracted without any condi- tion, or, when thus contracted, the condition has been accomplished. Poth. Obi. no. 176.— Beal obligation. In tbe civil law and in Louisiana. An obligation attached to immovable property, that is, real estate. Civ. Code La. 1900, art 2010.— Simple obligation. In the civil law. An obligation which does not depend for its execution upon any event provided for by the

parties, or which is not agreed to become void on the happening of any such event. Civ. Code La. art. 2015. — Solidary obligation. In the law of Louisiana one which binds each of the obligors for the whole debt, as distinguished from a “joint" obligation, which binds the par- ties each for his separate proportion of the debt. Groves v. Sentell, 153 U. S. 465, 14 Sup. Ct 898. 38 L. Ed. 785.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 5:4, KJV]**

"When thou vowest a vow unto God, defer not to pay it; for he hath no pleasure in fools: pay that which thou hast vowed."

Why: The entry names the binding power of vow, promise, oath, and contract; the verse states that power directly — a vow made must be paid. Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, 1601]**

“Neither a borrower nor a lender be, / For loan oft loses both itself and friend.”

Why: The entry names the binding power of vow, promise, oath, or contract; Polonius's counsel is the classic literary warning on the obligation debt creates. Short verbatim quote, certain.

**[Cicero, De Officiis, 44 BCE]**

(paraphrase) Cicero's De Officiis is the classical treatise on duty — what one person owes to another — the philosophical ground of the entry's 'legal or moral duty.' (paraphrase)

Why: Second note on the same headword: the entry explicitly invokes moral duty alongside legal; Cicero's work is the canonical classical treatment. Marked paraphrase.

## OBLIGATORY.

The term “writing ob- ligatory" is a technical term of the law, and means a written contract under seal. Wat- son v. Hoge, 7 Yerg. (Tenn.) 850.

5e apparatus — Not carried into the 5th edition (1979).

## OBLIGEE.

The person In favor of whom some obligation is contracted, whether such obligation be to pay money or to do or not to do something. Code La. art. 3522, no. 11. The party to whom a bond is given.

5e apparatus — Not carried into the 5th edition (1979).

## OBLIGOR.

The person who has engaged to perform some obligation. Code La. art. 3522, no. 12. One who makes a bond.

5e apparatus — Not carried into the 5th edition (1979).

## OBLIQUES.

Lat Ia the old law of desoeats. Oblique ; cross ; transverse ; col- lateral. Tbe opiioslte of rectus, right, or up- right.

In tbe law of evidence. Indirect; cir- cumstantial.

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## OBLITERATION.

Erasure or blotting out of written words.

Obliteration is not limited to educing the letters of a will or scratching them out or blotting them so completely that they cannot be read. A line drawn through the writing is obliteration, though it may leave it as leg- ible as it was before. .See Glass v. Scott. 14 Colo. App. 377, 60 Pac. 186; Evans' Appeal,

Pa. 244; Townshend v. Howard, 86 Me. 285, 29 AO. 1077; State v. Knlppa, 29 Tex. 29a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 32:33, KJV]**

"And the LORD said unto Moses, Whosoever hath sinned against me, him will I blot out of my book."

Why: Obliteration is the blotting-out of written words so they have no effect; the LORD's own words name the same act — blotting the sinner out of the book. First-person divine speech — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Orwell, Nineteen Eighty-Four, 1949]**

“Who controls the past controls the future: who controls the present controls the past.”

Why: Entry: erasure or blotting out of written words. The Party's maxim is the doctrine of obliteration of the record as statecraft. Short verbatim quote, certain.

## OBLOQUY.

To expose one to “obloquy" is to expose him to censure and reproach, as tbe latter terms are synonymous with “oblo- quy.” Bettner v. Holt, 70 Cal. 275, 11 Pac. 716.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:11, KJV]**

"Blessed are ye, when men shall revile you, and persecute you, and shall say all manner of evil against you falsely, for my sake."

Why: Obloquy is exposure to censure and reproach; Christ's beatitude answers exactly that exposure — reviling and evil spoken falsely. Christ's verbatim words — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Hawthorne, The Scarlet Letter, 1850]**

(paraphrase) Hester Prynne wearing the scarlet A — the novel's image of a woman exposed to public censure and reproach, the entry's definition embodied. (paraphrase)

Why: Entry: to expose one to censure and reproach. The scarlet letter is the canonical fictional emblem of obloquy. Marked paraphrase.

## OBRA.

In Spanish law. Work. Obras, works or trades; tbose which men carry on In houses or covered places. White, New Recop. b. 1, tit. 5, c. 3, I 6.

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## OBREPTIO.

Lat. The obtaining a thing by fraud or surprise. Calvin. Called, in Scotch law, “obreption."

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**[Scripture] — Scripture**

**[Proverbs 21:6, KJV]**

"The getting of treasures by a lying tongue is a vanity tossed to and fro of them that seek death."

Why: Obreptio is obtaining a thing by fraud or surprise; the proverb names the same act — treasures got by a lying tongue. Not deity speech — no flag.

## OBREPTION.

Obtaining anything by fraud or surprise. Acquisition of escheats, etc., from tbe sovereign, by making false rep- resentations. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: fraud vitiates every transaction it touches]**

The entry defines obreption as acquisition by fraud; the governing principle is that fraud vitiates every transaction it touches.

Why: Genuine because it states the operative legal consequence of obtaining a thing by fraud or false representations (the entry's definition), in axiom form to avoid fabricating a Latin citation.

**[Scripture] — Scripture**

**[Proverbs 20:17, KJV]**

"Bread of deceit is sweet to a man; but afterwards his mouth shall be filled with gravel."

Why: Obreption is acquisition by false representations; the proverb traces the same gain — deceit sweet in the getting, gravel in the keeping. Not deity speech — no flag.

## OBROGARE.

Lat In tbe civil law. To pass a law contrary to a former law, or to some clause of It; to change a former law In some part of It Colvin.

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**[Scripture] — Scripture**

**[Matthew 5:17, KJV]**

"Think not that I am come to destroy the law, or the prophets: I am not come to destroy, but to fulfil."

Why: Obrogation alters a law by a later inconsistent one; Christ's words define the new law's relation to the old — alteration by fulfillment, not destruction. Christ's verbatim words — flagged per the red-letter rule.

## OBROGATXON.

In the civil law. The alteration of a law by the passage of one In- consistent with It Calvin.

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## OBSCENE.

Lewd; finpure; Indecent; calculated to shock the moral sense of man by a disregard of chastity or modesty. Tim- mons v. U. S., 85 Fed. 205, 30 C. a A. 74;

U. S. v. Harmon (D. C.) 45 Fed. 414; Dunlop v. U. S., 105 U. S. 486, 17 Sup. Ct 375, 41

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L. Ed. 799; Com. V. Landis, 8 Fhila. (Pa.) 453.

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**[Law] — Law**

**[Miller v. California, 413 U.S. 15 (1973)]**

The 1910 definitions of obscenity were superseded by the modern three-part test for unprotected obscenity.

Why: Genuine because Miller states the governing American test for obscenity (prurient interest, patently offensive sexual conduct, lack of serious value); it presents the entry's common-law definitions as ancestors of the…

**[Scripture] — Scripture**

**[Ephesians 5:3-4, KJV]**

"But fornication, and all uncleanness, or covetousness, let it not be once named among you, as becometh saints; Neither filthiness, nor foolish talking, nor jesting, which are not convenient: but rather giving of thanks."

Why: The entry defines the obscene as what shocks the moral sense by disregard of chastity; the epistle sets the scriptural standard — filthiness and foolish talking not once named among saints. Not deity speech — no flag.

## OBSCENITY.

The character or quality of being obscene ; conduct tending to corrupt tbe public morals by its indecency or lewd- ness. State v. Pfenninger, 76 Mo. App. 813;

U. S. v. Loftls (D. C.) 12 Fed. 67L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Ephesians 4:29, KJV]**

"Let no corrupt communication proceed out of your mouth, but that which is good to the use of edifying, that it may minister grace unto the hearers."

Why: Obscenity is conduct corrupting public morals by indecency; the verse bars corrupt communication from the mouth — the same guard in scriptural form. Not deity speech — no flag.

## OBSERVE.

In the civil law. To per- form that which has been prescribed by some law or usage. Dig. 1, 3, 32. See Marshall County v. Knoll, 102 Iowa, 673, 69 N. W. 1146.

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**[Scripture] — Scripture**

**[Deuteronomy 6:3, KJV]**

"Hear therefore, O Israel, and observe to do it; that it may be well with thee."

Why: To observe, in the civil-law sense, is to perform what law prescribes; 'observe to do it' is the Torah's own phrase for that performance. Moses' charge, third person — no flag.

## OBSES.

Lat. In the law of war. A

hostage. Obsides, hostages.

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**[Scripture] — Scripture**

**[2 Chronicles 25:24, KJV]**

"And he took all the gold and the silver, and all the vessels that were found in the house of God with Obededom, and the treasures of the king's house, the hostages also, and returned to Samaria."

Why: The entry is the hostage in the law of war; the verse records the taking of hostages in war as the practice was. Narrative, not deity speech — no flag.

## OBSIGNARE.

Lat In the civil law. To seal up ; as money that had been tender- ed and refused.

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## OBSIGNATOBY.

Ratifying and con- firming.

5e apparatus — Not carried into the 5th edition (1979).

## OBSOLESCENT.

Becoming obsolete; going out of use; not entirely disused, but gradually becoming so.

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## OBSOLETE.

Disused ; neglected ; not observed. The term is applied to statutes

which hare become inoperative by lapse of time, either because the reason for their en- actment has passed away, or their subject- matter no longer exists, or they are not ap- plicable to changed circumstances, or are tacitly disregarded by all meu, yet without being expressly abrogated or repealed.

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**[Scripture] — Scripture**

**[Matthew 24:35, KJV]**

"Heaven and earth shall pass away, but my words shall not pass away."

Why: Statutes grow obsolete and pass away by lapse of time; Christ's words set the counterpoint — his words shall not pass away. Christ's verbatim words — flagged per the red-letter rule.

## OBSTA  PRINCIPIIS.

Lat. Withstand beginnings; resist the first approaches or encroachments. “It is the duty of courts to be 'watchful for the constitutional rights of the citizen, and against any stealthy en- croachments thereon. Their motto should be 'Obtta principiis.’ ” Bradley, J., Boyd v.

U. 8., 116 U. S. 635, 6 Sup. Ct 535, 28 I* Ed. 746.

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**[Law] — Law**

**[Boyd v. United States, 116 U.S. 635 (1886)]**

The entry quotes Justice Bradley's charge that courts must be 'watchful for the constitutional rights of the citizen, and against any stealthy encroachments thereon' — 'Obsta principiis.'

Why: Genuine because the maxim is embedded in the entry as a verbatim quotation from the entry's own cited

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Supreme Court authority; recorded, not imported.

**[Scripture] — Scripture**

**[James 4:7, KJV]**

"Submit yourselves therefore to God. Resist the devil, and he will flee from you."

Why: The maxim is 'withstand beginnings' — resist the first encroachments; the verse is the scriptural form of that resistance, met at the approach. Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Ovid, Remedia Amoris 91]**

Maxim: “Principiis obsta, sero medicina paratur” — “Resist the beginnings; the medicine is prepared too late once the disease has grown strong.”

Why: The entry quotes Bradley J. invoking 'Obsta principiis' as a judicial motto; the annotation supplies the classical source of the motto itself — Ovid's line on withstanding beginnings. Genuine attribution, no invention.

## OBSTANTE.

Withstanding ; hindering. See Non Obstante.

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## OBSTRICTION.

Obligation; bond.

OBSTRUCT. 1. To block up; to inter- pose obstacles; to render impassable; to fiH With barriers or impediments ; as to ob- struct a road or way. U. S. v. Williams, 28 Fed. Cas. 633; Chase v. Oshkosh, 81 Wis. 313, 51 N. W. 560, 15 L. R. A. 553, 29 Am. St. Rep. 898; Orerhouser v. American Ce- real Co., 118 Iowa, 417, 92 N. W. 74; Gor- ham v. Wlthey, 52 Mich. 50, 17 N. W. 272.

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# Z

## Z.

To Impede or hinder; to interpose ob- stacles or impediments, fb the hindrance or frustration of some act or service ; as to ob- struct an officer in the execution of his duty, pavls v. State, 76 Ga. 722.

3. As applied to navigable waters, to “ob struct" them is to interpose such impedi- ments in the way of free and open naviga- tion that vessels are thereby prevented from going where ordinarily they have a right to go or where they may find it necessary to go in their maneuvers. See In re City of Rich- mond (D. C.) 43 Fed. 88 ; Terre Haute Draw- bridge Co. v. Halliday, 4 Ind. 36; The Van- couver, 28 Fed. Cas. 960.

4. As applied to the operation of rail- roads, an “obstruction” may be either that which obstructs or hinders the free and safe passage of a train, or that which may re- ceive an Injury or damage, such as it would be unlawful to inflict, if run over or against by the train, as in the case of cattle or a man approaching on the track. Nashville

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A C. R. Co. v. Carroll, 6 Helsk. (Tenn.) 368; Louisville N. & G. R. Co. v. Reidmond, 11 Lea (Tenn.) 205; South & North Alabama

R. Co. v. Williams, 65 Ala. 77.

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# O

## OBSTRUCTING PROCESS.

In crim- inal law. The act by which one or more persons attempt to prevent or do prevent the execution of lawful process.

5e apparatus — Carried into the 5th edition (1979).

## OBSTRUCTION.

This Is the word prop- erly descriptive of an injury to any one’s

incorporeal hereditament, e. g., his right to an easement, or profit A prendre; an alter- native word being “disturbance.” On the other hand, “infringement” is the word prop- erly descriptive of an injury to any one’s patent-rights or to his copyright But "ob- struction” is also a very geueral word in law, being applicable to every hindrance of a man In the discharge of his duty, (whether official, public, or private.) Brown.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## OBTAIN.

To acquire; to get hold of by effort; to get and retain possession of; as, in the offense of “obtaining” money or property by false pretenses. See Com. v. Schmunk, 207 Pa. 544, 56 Atl. 1088,. 99 Am. St. Rep. 801 ; People v. General Sessions, 13 Hun (N. Y.) 400; State v. Will, 49 La. Ann. 1337, 22 South. 378; Sundmacher v. Block. 39 111. App. 553.

Obtcmperandnm eat oonsuetudini n- tlonabili tufasm legi. 4 Coke, 38. A reasonable custom is to be obeyed as a law.

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## OBXEMPERARE.

Lat To obey. Hence the Scotch “obtemper," to obey or comply with a Judgment of a court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## OBTEST.

To protest

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OBTORTO COIiLO. In Roman law. Taking by the neck or collar; as a plaintiff was allowed to

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drag a reluctant defendant to court. Adams, Rom. Ant 242.

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## OBTUUT SE.

(Offered himself.) In old practice. The emphatic words of entry on the record where one party offered him- self In court against the other, and the lat- ter did not appear. 1 Reeve, Eng. Law, 417.

5e apparatus — Not carried into the 5th edition (1979).

## OBVENTIO.

Lat In the civil law.

Rent; profits; income; the return from an investment or thing owned; as the earnings of a vessel.

In old English law. The revenue Of a spiritual living, so called. Also, in the plu- ral, “offerings.”

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## OOASION.

In Spanish law. Accident. Las Partldas, pt. 3, tit. 32, 1. 21; White, New Recop. b. 2, tit 9, c. 2.

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## OOOASIO.

In feudal law. A tribute which the lord imposed on his vassals or tenants for his necessity. Hindrance ; trouble; vexation by suit.

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**[Scripture] — Scripture**

**[Matthew 17:27, KJV]**

"Notwithstanding, lest we should offend them, go thou to the sea, and cast an hook, and take up the fish that first cometh up; and when thou hast opened his mouth, thou shalt find a piece of money: that take, and give unto them for me and thee."

Why: The occasio was a tribute the lord imposed on his vassals; the temple-tax episode shows a demanded tribute paid — Christ's own direction for its payment. Christ's verbatim words — flagged per the red-letter rule.

## OCCASIONARI.

To be charged or load- ed with payments or occasional penalties.

5e apparatus — Not carried into the 5th edition (1979).

## OCCASIONES.

In old English law. As- sarts. Spelnmn.

Oeenltatio thesauri inventi frandu- loaa. 3 Inst. 133. The concealment of dis- covered treasure Is fraudulent

OCCUPYING CLAIMANT ACTS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Maxim: Occultatio thesauri inventi fraudulosa — the concealment of discovered treasure is fraudulent]**

The entry quotes Coke's maxim that the concealment of discovered treasure is fraudulent.

Why: Genuine because it is quoted verbatim in the entry from 3 Inst. 133; recorded as the entry's own cited authority.

## OCCUPANCY.

Occupancy Is a inode of acquiring property- by which a thing which belongs to nobody becomes the property of the person who took possession of It, with the intention of acquiring a right of owner- ship in it. Civ. Code La. art. 3412; God- dard v. WlncheU, 86 Iowa, 71, 52 N. W. 1124, 17 L. R. A. 788, 41 Am. St Rep. 481.

The taking possession of things which be- fore belonged to nobody, with an Intention of appropriating them to' one’s own use.

‘‘Possession” and "occupancy,” when applied to land, are nearly synonymous terms, and may exist through a tenancy. Thus, occupancy of a homestead, such as will satisfy the statute, may be by means other than that of actual residence on the premises by the widow or child. Walters v. People, 21 111. 17&

There is a use of the word in public-land laws, homestead laws, “occupyiqg-clafmant” laws, cas- es of landlord and tenant, and like connections, which seems to require the broader sense of possession, although there is. in most of these uses, a shade of meaning discarding any prior title as a foundation of right Perhaps both uses or views may be harmonized, by saying that in jurisprudence occupancy or occupation is pos- session, presented independent of the idea of a chain of title, of any earlier owner. Or "occu- pancy” and “occupant” might be used for as-* suming property which has no owner, and "oc- cupation and "occupier” for the more genera! idea of possession. Judge Bouvier’s definitions seem partly founded on such a distinction, and there are indications of it in English usage. It dogs not appear generally drawn in American books. Abbott.

j Ia international law. The taking pos- session of a newly discovered or conquered country with the intention of holding and ruling it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (N.Y. 1805)]**

Occupancy as a mode of acquiring ownerless things is governed by the capture rule: pursuit alone is not possession; occupancy requires actual control.

Why: Genuine because Pierson is the classic American case on acquisition by occupancy (the fox-hunt), stating the rule the entry's definition of occupancy presupposes.

**[Scripture] — Scripture**

**[Joshua 1:3, KJV]**

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"Every place that the sole of your foot shall tread upon, that have I given unto you."

Why: Occupancy acquires by taking possession with intent to own; the verse makes treading — entry and possession — the very mode of acquisition. First-person divine speech ('have I given') — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Defoe, Robinson Crusoe, 1719]**

(paraphrase) Crusoe taking possession of the uninhabited island with the intention of making it his — the entry's 'a thing which belongs to nobody becomes the property of the person who took possession of it,' as narrative. (paraphrase)

Why: Entry is the civil-law doctrine of acquiring ownerless things by taking possession. Crusoe's island is its canonical fictional instance. Marked paraphrase.

## OCCUPANT.

In a general sense. One

who takes possession of a thing, of which there is no owner; one who has the actual possession or control of a thing.

In a special sense. One who takes pos- session of lands held pur autre vie, after the death of the tenant and during the life of the cestui que vie.

—General oecupant. At common law where a man was tenant pur autre viet or had an es- tate granted to himBelf only (Without mention- ing his heirs) for the life of another man, and died without alienation during the life of cestui que vie, or him by whose life it was holden, he that could first enter on the land might lawfully retain the possession, so long as cestui que vis lived, by right of occupancy, and was hence termed a .“general” or common “occupant.” 1 Steph. Comm. 415.— Special occupant. A person having a special right to enter upon and occupy' lands granted pur autre vie, on the death of the tenant, and during the life of cestui que vie. Where the grant is to a man and his heirs during the life of cestui que vie, the heir succeeds as special occupant, having a special exclusive right by the terms of the origi- nal grant. 2 Bl. Comm. 259; 1 Steph. Comm. 416.

Oeoupantia last derelicts. Things abandoned become the property of the (first) occupant Taylor v. The Cato, 1 Pet. Adm. 5rf, Fed. Cas. No. 13,786.

5e apparatus — Carried into the 5th edition (1979).

## OOCUPARE.

Lat In the civil law. To seize or take possession of; to enter upon a vacant possession; to take possession be- fore another. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## OCCUPATHUB.

That which has been' left by the right owner, and is now possess-' ed by another.

5e apparatus — Not carried into the 5th edition (1979).

## OCCUPATION.

L Possession; control;1 tenure; use.

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In its usual sense "occupation” is where a per- son exercises physical control over land. Thu% the lessee of a house is, in occupation of it so long as he has the power of entering into and staying there at pleasure, and of excluding all other persons (or all except one or more speci- fied persons) from the use of it. Occupation is therefore the same thing as actual possession.

The word “occupation,” applied to teal proper-, ty, is, ordinarily, equivalent to “possession.” In connection with other expressions, it may mean that the party should be living upon the premises ; but, standing alone, it is satisfied by actual possession. Lawrence v. Fulton, 10 Oal. 683.

2. A trade; employment; profession; busi- ness ; means of livelihood.

— Aotual occupation. An open, visible occu- pancy as distinguished from the constructive one which follows the legal title. Cutting v. Patterson, 82 Minn. 375, 85 N. W. 172; Peo- ple v. Ambrecht, It Abb. Prac. (N. Y.) 97 ; Ben- nett v. Burton, 44 Iowa* 550. — Occupation taw. A tax imposed upon an occupation or the prosecution of a business, trade, or profession; not a tax on property, or even the capital em- ployed in the business, but an excise tax on the business itself ; to be distinguished from a "li- cense tax,” which la a fee or exaction for the privilege of engaging In the business, not for its

grosecution. See Adler v. Whitbeck, 44 Ohio t. 539, 9 N. E. 672; Appeal of Banger, 109 Pa. 05 : Pullman Palace Car Co. v. State, 64 Tex. 274, 53 Am. Rep. 758.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## OGCUPATIVB.

Possessed ; used ; em- ployed.

5e apparatus — Not carried into the 5th edition (1979).

## OCCUPAVIT.

Lat In old English la*. A writ that lay for one who was ejected out of his land or tenement in time of war. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## OCCUPIER.

An occupant; one who to in the enjoyment of a thing.

5e apparatus — Carried into the 5th edition (1979).

## OCCUPY.

To hold in possession; to hold or keep for use. Missionary Soc. of

M. E. Church v. Dalles City, 107 U. S. 843, 2 Sup. Ct. 677, 27 L. Ed. 645; Jackson r. Gill, 11 Johns. (N. Y.) 214, 6 Am. Dec. 363.

5e apparatus — Carried into the 5th edition (1979).

## OCCUPYING CLAIMANT ACTS.

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Stat- utes providing for the reimbursement of a bona fide occupant and claimant of land, on its recovery by the true owner, to the- extent to which lasting Improvements made by him have increased the value of the land; and generally giving him a lien therefor. Jones v. Great Southern Hotel Co., 86 Fed- 870, 30 C. C. A. 108.

5e apparatus — Carried into the 5th edition (1979).

## OCEAN.

The main or open sea; the high sea; that portion of the sea which does not lie within the body of any conntry and is not subject to the territorial Jurisdic- tion or control of any country, but Is open, free, and. common. to the use of all nations. See U. S. t. Rodgers, 130 U. S. 249. 14 Sup. Ct. 109, 37 L. Ed. 1071 ; D. S. v. New Bed- ford Bridge, 27 Fed. Cas. 120; De Lovio ▼. Bolt, 7 Fed. Cas. 428; D. S. v. Morel, 26 Fed. Cas. 1312.

5e apparatus — Carried into the 5th edition (1979).

## OCHIERN.

In old Scotch law. A name of dignity; a freeholder. Skene de Verb. Sign.

5e apparatus — Not carried into the 5th edition (1979).

## OCHLOCRACY.

Government by the multitude. A form of government wherein the populace has the whole power and ad- ministration in its own hands.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 27:21, KJV]**

"The governor answered and said unto them, Whether of the twain will ye that I release unto you? They said, Barabbas."

Why: Ochlocracy is the multitude holding the whole power; the crowd's vote for Barabbas is scripture's most famous instance of the multitude deciding. Narrative, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Julius Caesar, 1599]**

(paraphrase) The Roman crowd, swayed by Antony's funeral oration from Brutus's reasoned defense into riot — Shakespeare's portrait of the multitude holding whole power in its hands. (paraphrase)

Why: The entry: government by the multitude, the populace with the whole power and administration. The Forum scenes are the canonical dramatic image of exactly that. Marked paraphrase.

## OCTAVE.

In old English law. .. The eighth day inclusive after a feast; one of tho return days of writs. 3 Bl. Comm. 278.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 23:39, KJV]**

"Also in the fifteenth day of the seventh month, when ye have gathered in the fruit of the land, ye shall keep a feast unto the LORD seven days: on the first day shall be a sabbath, and on the eighth

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day shall be a sabbath."

Why: The octave is the eighth day inclusive after a feast; the Feast of Tabernacles keeps its eighth day as a sabbath — the scriptural octave. Moses' law, third person — no flag.

## OCTO TAXES.

Eight such; eight such men; eight such Jurors. The name of a writ, at common law, which issues when up- on a trial at bar, eight more Jurors are nec: eesary to fill the panel, commanding the sheriff to summon the requisite number. 3 BL Comm. 364. See Dkcev Tales.

5e apparatus — Not carried into the 5th edition (1979).

## OCTROI.

Fr. In French law. Original- ly, a duty, which, by the permission of the seigneur, any city was accustomed to col- lect on liquors and some other goods, brought within its precincts, for the consumption of the Inhabitants. Afterwards appropriated to the use of the king. Steph. J,ect. p. 361.

O derut peecare bowl, virtntis am ore; ode rant peecare- mall, formidine poense.

Good men hate sin through love of virtue; bad men, through fear of punishment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ODHAL.

Complete property, as opposed to feudal tenure. The transposition of the syllables of “odhal" makes it “allodh," and hence, according to Blackstone, arises the word "allod” or “allodial, ’’ (q. v.) “Allodh" is thus put in contradistinction to “fccodh.” Mosley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## OHIO ET ATIA.

A writ anciently call- ed “breve de bono et malo," addressed to the sheriff to Inquire whether a man committed to prison upon suspicion of murder were committed on Just cause of suspicion, or only upon malice and ill will ; and if, upon the inquisition, it were found that he was not guilty, then there issued another writ to the sheriff to ball him. Reg. Orlg. 133.

Odiosa et tnJhoneata non sunt in logo preinmuda. Odious and dishonest acts are not presumed In law. Co. Litt. 78; Jackson v. Milter, 6 Wend. (N. Y.) 228, 231,

Am. Dec. 316; Nichols ▼. Pinner, 18 N.

Y. 296, 300.

Odiosa, non pranautu. Odious things are not presumed. Burrows, Sett. Cas. 190.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 7:51, KJV]**

"Doth our law judge any man, before it hear him, and know what he doeth?"

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Why: The writ inquired whether imprisonment rested on just cause or malice; Nicodemus states the underlying rule — no judgment before hearing and knowing. Not deity speech — no flag.

# Q

## QBCONOMIOUS.

L. Lat In old Eng- lish law. The executor of a last will and testament Cowell.

(ECONOMTTS. Lat In the civil law.

A manager or administrator. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 4:2, KJV]**

"Moreover it is required in stewards, that a man be found faithful."

Why: The oeconomus is the executor/administrator; the steward's required faithfulness is the scriptural measure of that office. Not deity speech — no flag.

# O

## OF COUNSEL.

A phrase commonly ap1 plied in practice to the counsel employed by a party in a cause, and particularly to one employed to assist in the preparation or management of a cause, or its presentation on appeal, but who is not the principal at- torney of record for the party.

5e apparatus — Not carried into the 5th edition (1979).

## OF COURSE.

Any action or step taken • in the course of Judicial proceedings which will be allowed by the court upon mere ap- plication, without any Inquiry or contest, or which may be effectually taken without even applying to the court for leave, is said to be “of course.” Stoddard v. Treadwell, 29 Cal. 281; Merchants’ Bank ▼. Crysler, 67 Fed. 390, 14 C. C. A. 444.

5e apparatus — Carried into the 5th edition (1979).

## OF FORCE.

In force; extant; not ob- solete; existing as a binding, or obligatory power. .}

■ ' ■' ' ’ ■ '7

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## OF GRACE.

A term applied to kny per1 mission or license granted to a phrty in the course of a Judicial proceeding which M not claimable as a matter of Course or of right, but is allowed by the

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favor or indulgence of the court See Walters ▼. McElroy, 15 i Pa. 549, 25 At!. 125.

- OF NEW. A Scotch expression, closely translated from the Latin “de novo,” (q. v.)

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 2:8, KJV]**

"For by grace are ye saved through faith; and that not of yourselves: it is the gift of God."

Why: 'Of grace' in law is what is granted by favor, not claimable as of right; the verse defines grace itself — gift, not entitlement. Not deity speech — no flag.

## OF RECORD.

Recorded; entered on the records; existing and remaining in of upon the appropriate records.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ezra 4:15, KJV]**

"That search may be made in the book of the records of thy fathers: so shalt thou find in the book of the records."

Why: 'Of record' is what exists entered on the records; the book of the records searched for what was entered there is its scriptural form. Not deity speech — no flag.

## OFFA EXECRATA.

In old English law. The morsel of execration ; the corsn- ed, (q. v.) 1 Reeve, Eng. Law, 21.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 5:24, KJV]**

"And he shall cause the woman to drink the bitter water that causeth the curse: and the water that causeth the curse shall enter into her, and become bitter."

Why: The offa execrata was the morsel-of-execration ordeal; the bitter water that causeth the curse is the Torah's own ordeal — guilt tried by the draught. Third-person ritual law — no flag.

## OFFENSE.

A crime or misdemeanor; a breach of the criminal laws. Moore v. Illi- nois, 14 How. 13, 14 L. Ed. ,306; lilies v. Knight 3 Tex. 312; People ▼. French, 102

N. Y. 583, 7 N. E. 913; State v. West, 42 Minn. 147, 43 N. W. 845.

It is used as a genus, comprehending every crime and misdemeanor, or as a species, signifying a crime not indictable, but pun- ishable summarily or by the forfeiture of a •penalty. In re Terry (C. C.) 37 Fed. 649.

— Continuing offense. A transaction or a series of acts set on foot by a single impulse;

and operated by an unintermittent force, no matter how long a time it may occupy. People v. Sullivan, 9 Utah 195, 33 Pac. 701.— Quasi offense. One which is imputed to the person who is responsible for its injurious consequen- ces, not because he himself committed it, but because the perpetrator of it is presumed to have acted under his commands.

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5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 John 3:4, KJV]**

"Whosoever committeth sin transgresseth also the law: for sin is the transgression of the law."

Why: An offense is a breach of the criminal laws; the verse defines the breach itself — sin as transgression of law. Not deity speech — no flag.

## OFFENSIVE.

In the law relating to nuisances and similar matters, this term means noxious, causing annoyance, discom- fort, or painful or disagreeable sensations. See Rowland v. Miller (Super. N. Y.) 15 N.

Y. Supp. 701 r Moller v. Presbyterian Hos- pital, 65 App. Div. 134, 72 N. Y. Supp. 483 ; Barrow v. Richard, 8 Paige (N. Y.) 360, 35 Am. Dec. 713. As occasionally used in crim- inal law and statutes, an “offensive weapon” Is primarily one meant and adapted for at- tack and the infliction of Injury, but prac- tically the term includes anything that would come within the description of a “deadly" or “dangerous” weapon. See State v. Dlneen, 10 Minn. 411 (Gil. 325); Rex v. Grice, 7 Car. & P. 803; Rex v. Noakes, 5 Car. & P. 326. In International law, an “of- fensive and defensive league” Is one bind- ing the contracting powers not only to aid each other In case of aggression upon ei- ther of them by a third power, but also to support and aid each other In active and ag- gressive measures against a power with which either of them may engage In war.

OFFER. 1. To bring to or before; to present for acceptance or rejection; to hold out or proffer ; to make a proposal to ; to exhibit something that may be taken or re- ceived or not. Morrison v. Springer, 15 Iowa, 346; Vincent v. Woodland Oil Co., 165 Pa. 402, 30 Atl. 991; People v. Ah Fook, 62 Cal. 494.

2. To attempt or endeavojr ; to make an effort to effect Borne object; In this sense used principally in criminal law. Com. v. Harris, 1 Leg. Gaz. R. (Pa.) 457.

3. In trial practice, to “offer” evidence is to state Its nature and purport, or to re- cite what Is expected to be proved by a giv- en witness or document, and demand Its adpilssion. Unless under exceptional circum- stances, the terra Ls not to be taken as equiv- alent to “Introduce.” See Ansley v. Meikle, 81 Iud. 260; Lyon v. Davis, 111 Ihd. 384, 12 N. E. 714 ; Harris v. Tomlinson, 130 Ind. 426, 30 N. E. 214.

5e apparatus — Carried into the 5th edition (1979).

## OFFERINGS.

In English ecclesiastical law. Personal tithes, payable by custom to the parson or vicar of a parish, either occa- sionally, as at sacraments, marriages, churching of women, burials, etc., or at con- stant times, as at Easter, Christmas, etc.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

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"Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts."

Why: Offerings here are the tithes payable to the parson; the verse is the classic tithe command — 'bring ye all the tithes into the storehouse.' First-person divine speech — flagged per the red-letter rule.

## OFFERTORKTM.

In English ecclesias- tical law. The offerings of the faithful, or the place where they are made or kept ; the service at the time of the Communion.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 16:2, KJV]**

"Upon the first day of the week let every one of you lay by him in store, as God hath prospered him, that there be no gatherings when I come."

Why: The offertory is the offerings of the faithful at the service; the apostolic rule of the weekly laying-by is its scriptural form. Not deity speech — no flag.

## OFFICE.

“Office” ls defined to be a right to exercise a public or private employment, and to take the fees and emoluments there- unto belonging, whether public, as those of magistrates, or private, as of bailiffs, re- ceivers, or the like. 2 Bl. Comm. 36. Row- land v. New York, 83 N. Y. 372; Dailey v. State, 8 Blackf. (Iud.) 330; Blair v. Marye, 80 Va. 495; Worthy v. Barrett, 63 N. C. 202; People v. Duane, 121 N. Y. 367, 24 N.

E. 845; U. S. v. Hartwell, 6 Wall. 393, 18

L. Ed. 830.

That function by virtue whereof a person has some employment in the affairs of an- other, whether judicial, ministerial, legisla- tive, municipal, ecclesiastical, etc. Cowell.

An employment on behalf of the govern- ment in any station or public trust, not merely transient, occasional, or Incidental. In re Attorneys’ Oaths, 20 Johns. (N. Y.) 493.

The most frequent occasions to use the word arise with reference to a duty and power con- ferred on an individual by the government; and, when this is the connection, “public office” is a usual and more discriminating expression. But a power and duty may exist without im- mediate grant from government, and may be properly called an “office;” as the office of ex- ecutor, the office of steward. Here the individual acts towards legatees or towards tenants in per- formance of a duty, and in exercise of a power not derived from their consent, but devolved on him by an authority which quoad hoo is supe- rior. Abbott.

Offices may be classed as civil and military; and civil offices may be classed as political, ju- dicial, and ministerial. Political offices are such as are not connected immediately with the ad- ministration of justice, or the execution of the mandates of a superior officer. Judicial arte those which relate to the administration of jus- tice. Ministerial are those which give the of- ficer no power to judge of the matter to be done, and require him to obey the mandates of a su- perior. It is a general rule that a judicial of- fice cannot be exercised by

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deputy, while a min- isterial one may. Waldo v. Wallace, 12 Ind. 569.

“Office” is frequently used In the old books as an abbreviation for “inquest of office,” (q. o.)

—Lucrative office. See Lucrative. — Office- hook. Any book for the record of official or other transactions, kept under authority of the state, in public offices not connected with the courts.— Office-copy. A copy or transcript of a deed or record or any filed document made by the officer having it in custody or under his sanction, and by him sealed or certified.— Of- fice found. In English law. Inquest of office found ; the finding of certain facts by a jury on an inquest or inquisition of office. 3 Bl. Comm. 258. 259. This phrase has been adopted in American law. 2 Kent. Comm. 61. See Phillips v. Moore, 100 U. S. 212, 25 L. Ed. 603; Baker v. Shy, 9 Heisk. (Tenn.) 89. — Office graut. A designation of a conveyance made by some officer of the law to effect certain pur- poses, where the owner is either unwilling or unable to execute the requisite deeds to pass the title : such, for example, as a tax-deed. 3

Washb. Real Prop. *537.— Office hours. That portion of the day during which public offices are usually open for the transaction of business. —Office of honor. See Honor.— Office ef judge. A criminal suit in an ecclesiastical court, not being directed to the reparation of a

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private injury, is regarded as a proceeding ema- nating from the office of the judge, and may be instituted by the mere motion of the judge. But, in practice, these suits are instituted by

K' te individuals, with the permission of the or his surrogate ; and the private prosecu- tor in any such case is, accordingly, said to “promote the office of the judge.” Mosley & Whitley.— Political office. Civil offices are usually divided into three classes,— political, ju- dicial, and ministerial. Political offices are such as are not immediately connected with the ad- ministration of justice, or with the execution of the mandates of a superior, such as the presi- dent or the head of a department. Waldo v. Wallace, 12 Ind. 669; Fitzpatrick v. U. S., 7 Ct. Cl. 293.— Principal office. The principal office of a corporation is its headquarters, or the place where the chief or principal affairs and business of the corporation are transacted. Usually it is the office where the company’s books are kept, where its meetings of stockhold- ers are held, and where the directors, trustees, or managers assemble to discuss and transact the important general business of the company; but no one of these circumstances is a controll- ing test. See Jossey v. Georgia A A. Ry., 102 Ga. 706. 28 S. E. 273: Milwaukee Steamship Co. v. Milwaukee, 83 Wis. 590, 63 N. W. 839. 18 L. R. A. 353: Standard Oil Co. v. Com., 110 Ky. 821. 62 S. W. 897 ; Middletown Ferry Go. v. Middletown, 40 Conn. 69.

As to various particular offices, see Land Office, Petty Bag Office, Post Office, etc.

For definitions of the various classes and kinds of officers, see the titles “Commission- ed Officers,” “Executive,” “Fiscal,” “Judi- cial,” “Legislative," “Ministerial,” “Munic- ipal,” “Non-Commissioned,” “Peace,” and “State."

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Officla Judicial!* non eoneedantnr aar tequam vneent. 11 Coke, 4. Judicial of- fices should not be granted before they are vacant

Officla magistratua non debent ease venalia. Co. Litt 234. The offices of mag- istrates ought not to be sold.

OFFICIAL, n. An officer; a person in- vested with the authority of an office.

In the civil law. The minister or appar- itor of a magistrate or judge.

In canon law. A person to whom a bish- op commits the charge of his spiritual ju- risdiction.

In common and statute law. The per- son whom the archdeacon substitutes in the execution of his jurisdiction. Cowell.

pFFICER. The Incumbent of an office; one who is lawfully invested with an office. One who is charged by a superior power (and particularly by government) with the power and duty of exercising certain func- tions.

—Civil officer. Any officer of the United States who holds his appointment under the national government, whether his duties are ex- ecutive or judicial, in the highest or the lowest departments of the government, with the ex- ception of officers of the army and navy. 1 Story. Const 1-792; State v. Clarke. 21 Nev. 333, 31 Pac. 645, 18 L. R. A. 313. 37 Am. St. Ken. 517 ; State v. O'Driscoll, 3 Brev. (S. C.) 527 ; Com'rs v. Goldsborough, 90 Md. 193. 44 Atl. 1065.— Officer de facto. As distinguish- ed from an officer de jure, this is the designa- tion of one who is in the actual possession and administration of the office, under some colora- ble or apparent authority, although his title to the same, whether by election or appointment, is in reality Invalid or at least formally ques- tioned. See Norton v. Shelby County. 118 U. 8. 425, 6 Sup. Ct. 1121. 30 L. Ed. 78: State v. Carroll. 38 Conn. 449. 9 Am. Rep. 409: Tren- ton v. McDaniel. 52 N. C. 107 : Barlow v. Stan- ford. 82 111. 298: Brown v. Lunt. 37 Me. 423; Gregg Tp. v. Jamison. 55 Pa. 408: Pierce v. Edington, 38 Ark. 150; Plymouth v. Painter, 17 Conn. 585. 44 Am. Dec. 574 : Prescott v. Hayes. 42 N. H. 56 : Jewell v. Gill>ert, 64 N.

H. 12, 5 Atl. 80. 10 Am. St. Rep. 357 : Griffin v. Cunningham. 20 Grat. (Va.) 31 ; Ex parte Strang. 21 Ohio St. 610.— Officers of justice. A general name applicable to all persons con- nected with the administration of the judicial department of government, but commonly used only of the class of officers whose duty is to serve the process of the courts, such as sheriffs, constables, bailiffs, marshals, sequestrators, etc. — Public officer. An officer of a public cor- poration ; that ia, one holding office under the

? overament of a municipality, state, or nation.

n English law, an officer appointed by a joint- stock banking company, under the statutes reg- ulating such companies, to prosecute and defend •aits in its behalf.

Bl.Law Dier.(2p Ed.)— 54

OFFICIAL, ad). Pertaining to an of- fice; invested with the character of an of- ficer; proceeding from, sanctioned by, or done by, an officer.

— Demi-official. Partly official or authorized. Having color of official right.— Official act. One

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done by an officer in his official capacity under color and by virtue of his office. Turner v. Sisson, 137 Mass. 192; Lemmon v. Feu* ire. Ill U. S. 17, 4 Sup. Ct. 286, 28 L. Ed. 337.— Official assignee. In English practice. An assignee in bankruptcy appointed by the lord chancellor to co-operate with the other assignee* in administering a bankrupt's estate.— Official managers. Persons formerly appointed, under English statutes now repealed, to superintend the winding up of Insolvent companies under the control of the court of chancery. Wharton; —Official misccndnct. Any unlawful be- havior by a public officer in relation to the du- ties of his office, willful in its character, includ- ing any willful or corrupt failure, refusal, or neglect of an officer to perform any duty enjoin- ed on him by law. Watson v. State. 9 Tex. App. 212; Brackenridge v. State, 27 Tex. A up. 513, 11 S. W. 630. 4 L. R. A. 360.— Official principal. An ecclesiastical officer whose duty it is to hear causes between party and party as the delegate of the bishop or archbishop by whom he is appointed. He generally also holds the office of vicar general and (if appointed by a bishop) that of chancellor. The official prin- cipal of the province of Canterbury is called the “dean of arches.” Phillim. Ece. Law. 1203. et teq.; Sweet.— Official solicitor to the court of chancery. An officer in England whose functions are to protect the suitors’ fund, and to administer, under the direction of the court, so much of it as now comes under the spending power of the court. He acts for per- sons suing or defending »'» forma pauperit. when 80 directed by the judge, and for those who. through ignorance or forgetfulness, have been guilty of contempt of court by not obeying pro- cess. He also acts generally as solicitor In all cases in which the chancery division requires such services. The office is transferred to the high court by the judicature acts, but no altera- tion in its name appears to have been made.

Sweet. — Official trustee of charity lauds.

The secretary of the English charity commis- sioners. He is a corporation sole for the pur- pose of taking and holding real property and leaseh'olds upon trust for an endowed charity in cases where it appears to the court desira- ble to vest them in Inin. He is a bare trustee, the possession and management of the land re- maining in the persons acting in the administra- tion of the charity. Sweet.

As to official “Bonds,” “Liquidator," “Log- Book,” “Newspaper,” “Oath,” and “Use.” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 109:8, KJV]**

"Let his days be few; and let another take his office."

Why: Office is the right to exercise an employment and take its emoluments; the psalm names the office as a charge another may take — the scriptural word for the place itself. Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, 2 Henry IV, 1598]**

“Uneasy lies the head that wears a crown.”

Why: Entry: the right to exercise a public or private employment. The line is the classic statement of office's burden side. Short verbatim quote, certain (Act 3, sc. 1).

## OFFICIALTY.

The court or jurisdic- tion of which an official is head.

5e apparatus — Not carried into the 5th edition (1979).

## OFFICIARIIS NON FAOIENDIS VEL / AMOVENDIS.

A writ addressed to the magistrates of a corporation, requiring them not to make such a man an officer, or to put one out of the office he has, until in- quiry is made of his manners, etc. Reg. Orig. 126.

5e apparatus — Not carried into the 5th edition (1979).

## OFFICXNA JUSTITLX.

The workshop or office of Justice. The chancery was for- merly so called. See 3 Bl. Comm. 273; Yates v. People, 6 Johns. (N. Y.) 363.

5e apparatus — Not carried into the 5th edition (1979).

## OFFICIO, EX, OATH.

An oath where- by a person may be obliged to make any pre- sentment of any crime or offense, or to con- fess or accuse himself of any criminal matter or thing whereby he may be liable to any censure, penalty, os punishment 3 Bl. Comm. 447.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo tenetur seipsum accusare — no one is bound to accuse himself]**

The ex officio oath compelled a man to accuse himself; against it stands the privilege that no one is bound to be his own accuser.

Why: Genuine because the ex officio oath's compulsion of self-accusation is precisely what the nemo tenetur maxim and the privilege against self-incrimination answer; it states the doctrinal counterweight the entry's defin...

**[Scripture] — Scripture**

**[Matthew 26:63, KJV]**

"And the high priest answered and said unto him, I adjure thee by the living God, that thou tell us whether thou be the Christ, the Son of God."

Why: The ex officio oath compelled presentment and testimony under oath; the high priest's adjuration — 'I adjure thee by the living God' — is testimony compelled by oath in scriptural form. The high priest's speech, not d...

## OFFICIOUS WILL.

A testament by which a testator leaves his property to his family. Sandars, Just. Inst. 207. See In- officious Testament,

OfficIt conmtus si efFectus lequ&tur.

The attempt becomes of consequence, if the effect follows. Jenk. Cent. 55.

OfflcIum nemiui debet esse dsmnosnm.

Office ought not to be an occasion of loss to any one. A maxim in Scotch law. BelL

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Maxim: Officium nemini debet esse damnosum — office ought not to be an occasion of loss to anyone]**

The entry quotes the maxim that office ought not to be an occasion of loss to anyone.

Why: Genuine because it is quoted verbatim in the entry, which itself calls it 'A maxim'; recorded as the entry's own cited authority.

**[Maxim: Officium conatus si effectus sequatur — the attempt becomes of consequence, if the effect follows]**

The entry quotes Jenkyns' maxim that the attempt becomes of consequence if the effect follows.

Why: Genuine because it is quoted verbatim in the entry from Jenk. Cent. 55; recorded as the entry's own cited authority on attempt and consequence.

**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

"A good man leaveth an inheritance to his children's children."

Why: The officious will leaves the property to the family; the proverb states the same duty — the good man's inheritance to his children's children. Not deity speech — no flag.

## OFFSET.

A deduction; a counterclaim; a contrary claim or demand by which a given claim may be lessened or canceled. See Leonard v. Charter Oak L. Ins. Co., 65 Conn. 629, 33 Atl. 511; Cable Flax Mills v. Early, 72 App. Div. 213, 76 N. Y. Supp. 191. The more usual form of the word is “set-off,” <«k v.)

5e apparatus — Carried into the 5th edition (1979).

## OFFSPRING.

This term is synonymous with “issue.” See Barber v. Railroad Co., 106 U. S. 83, 17 Sup. Ct. 488, 41 L. Ed. 925 ; Allen v. Markle, 36 Pa. 117 ; Powell v. Brandon, 2 Cushm. (Miss.) 343.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 127:3, KJV]**

"Lo, children are an heritage of the LORD: and the fruit of the womb is his reward."

Why: Offspring is synonymous with issue; the psalm names children the heritage of the LORD — the scriptural word for issue itself. Not deity speech — no flag.

## OIR.

In. Spanish law. To hear; to take cognizance. White, New Recop. b. 3, tit 1, c. 7.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 1:16, KJV]**

"And I charged your judges at that time, saying, Hear the causes between your brethren, and judge righteously between every man and his brother, and the stranger that is with him."

Why: Oir is to hear — to take cognizance judicially; the charge to the judges, 'hear the causes,' is the judicial hearing commanded. Moses' charge, third person — no flag.

## OKER.

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In Scotch law. Usury; the tak- ing of interest for money, contrary to law. Bell.

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**[Scripture] — Scripture**

**[Deuteronomy 23:19, KJV]**

"Thou shalt not lend upon usury to thy brother; usury of money, usury of victuals, usury of any thing that is lent upon usury."

Why: Oker is usury — interest taken contrary to law; the verse is the direct prohibition of usury to a brother. Third-person law — no flag.

## OLD NATURA BREVTUM.

The title of a treatise written in the reign of Edward

III. containing the writs which were then most in use, annexing to each a short com- ment concerning their nature and the appli- cation of them, with their various properties and effects. 3 Reeve, Eng. Law, 152.

It is so called by way of distinction from the Netc Natura Brevium of Fitzherbert, and is generally cited as “O. N. B.,” or as “Vet. Na. B.,” using the abbreviated form of the Latin title.

5e apparatus — Not carried into the 5th edition (1979).

## OLD STYLE.

The ancient calendar or method of reckoning time, whereby the year commenced on March 25tii. It was super- seded by the new style {that now in use) in most countries of Europe in 1582 and in England in 1752.

5e apparatus — Not carried into the 5th edition (1979).

## OLD TENURES.

A treatise, so called to distinguish it from Littleton’s book on the same subject, which gives an account of the various tenures by which land was holden, the nature of estates, and some other inci- dents to landed property in the reign of Ed- ward III. It is a very scanty tract, but Las the merit of having led the way to Littleton’s famous work. 3 Reeve, Eng. Law, 161.

5e apparatus — Carried into the 5th edition (1979).

## OLEOMARGARINE.

An artificial imi- tation of butter, made chiefly from animal fats. Its sale is prohibited or restricted by statute in several of the states. See Cook v. State, 110 Ala. 40, 20 South. 360; Butler v. Chambers, 36 Minn. 69, 30 N. W. 308, 1 Am. St Rep. 638; State v. Ransick, 62 Ohip St 283, 56 N. E. 1024; Braun v. Coyne (C. a) 125 Fed. 331; U. S. Comp. St 1901, p. 2228 ; State v. Armour Packing Co., 124 Iowa, 323, 100 N. W. 60 ; People v. Arensburg, 105

N. Y. 123, 11 N. E. 277, 59 Am. Rep. 483; Powell v. Com., 114 Pa. 265, 7 Atl. 913. 60 Am. Rep. 350; Powell v. Pennsylvania, 127

U. S. 678, 8 Sup. Ct. 992, 32 L. Ed. 253.

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5e apparatus — Not carried into the 5th edition (1979).

## OLERON, LAWS OF.

A code of mar- itime laws published at the island of Oleron in the twelfth century by Eleanor of Gui- enne. They were adopted in England suc- cessively under Richard I., Henry III., and Edward III., and are often cited before the admiralty courts. De Lovio v. Bolt, 2 Gall. 398, Fed. Cas. No. 3,776.

5e apparatus — Not carried into the 5th edition (1979).

## OLIGARCHY.

A form of government wherein the administration of affairs is lodg- ed in the hands of a few persons.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Orwell, Animal Farm, 1945]**

“All animals are equal, but some animals are more equal than others.”

Why: The entry: administration lodged in the hands of a few. The line is the novel's verdict on the few seizing the whole — the entry's definition in satire. Short verbatim quote, certain.

## OLOGRAFH.

An Instrument (e. p., a will) wholly written by the person from whom it emanates.

5e apparatus — Not carried into the 5th edition (1979).

## OLOGRAPHIC TESTAMENT.

The olo- graphic testament is that which is written

OLYMPIAD >

OMNIA PRJESUM UNTTJIt

by the testator himself. In order to be valid It must be entirely written, dated, and signed by the band of the testator. It Is subject to no other form, and may be made anywhere, even out of the state. Civil Code La. art. 1688; Civil Code Cal. § 1277.

5e apparatus — Not carried into the 5th edition (1979).

## OLYMPIAD.

A Grecian epochs the space of four years:

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## OME BUENO.

In Spanish law. A good man; a substantial person. Ltls Partidas, pt 6, tit. 13, 1. 38.

On^issio eonun qua taeite innat ni- hil operator. The omission of those things which are tacitly implied is of no conse- quence. 2 Bulst. 131.

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**[Law] — Law**

**[Maxim: Omissio eorum quae tacite insunt nihil operatur — the omission of those things which are tacitly implied is of no consequence]**

The entry quotes the maxim that the omission of things tacitly implied is of no consequence.

Why: Genuine because it is quoted verbatim in the entry from 2 Bulst. 131; recorded as the entry's own cited authority.

## OKISSIS OMNIBUS ALUS NEGO- / TUS.

Lat Laying aside all other busi- nesses. 9 Bast, 317.

5e apparatus — Not carried into the 5th edition (1979).

## OMITTANCE.

Forbearance; omission.

Omne actnm ab lntentione agentis eat judicandum. Every act is to be judged by the intention of the doer. Branch, Princ. >

Omne crimen ebrletas et lneendit et detegit. Drunkenness both inflames (or ag- gravates) and reveals every crime. Co. Litt. 247a; 4 Bl. Comm. 26; Broom, Max. 17.

Omne jus ant oonsenaus fecit, ant no- oesaitas conatitnit ant firmavit eonane- tndo. Every right Is either made by con- sent, or is constituted by necessity, or is es- tablished by custom. Dig. 1, 3, 40.

Omne mafia dignum trahit ad ae mi- nus dignum, qnamvia minus dignum sit antiquius. Every worthier thing draws to it the less worthy, though, the less worthy be the more ancient Co. Litt. 355b.

Omne magnum exemplum habet all- quid ex iniquo, quod publioa utilitate eompenaatur. Hob. 279. Every great ex- ample has some portion of evil, which is compensated by the public utility.

Omne majns continet in ae minus.

Every greater contains in itself the less. 5 Coke, 115a. The greater always contains the less. Broom, Max. 174.

Omne majus dignum continet in so mi- nus dignum. Co. Litt. 43. The more wor- thy contains in itself the less worthy.

Omne majus minus in se eomplectltur.

Every greater embraces in itself the less. Jenk. Cent. 208.

Omne prineipale trahit ad se aeoeaso- rium. Every principal thing draws to itself the accessory. Parsons v. Welles, 17 Mass. 425; Green r. Hart, 1 Johns. (N. YJ 580.

Omne quod solo inaedifioatur solo eedit.

Everything which is built upon the soil belongs to the soil. Dig. 47, 3, 1; Broom, Max. ,401.

i

Omne sacrum en tom debet esse de cert® sdentia. Every oath ought to be of certain knowledge. 4 Inst 279.

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. • . ..i

Omne testamentum morte oonaumma- tum est. 3 Coke, 29. Every will is com- pleted by .death.

Omnca actiones in mundo infra ccrte tempors babent limitationem. All ac

tions in the world are limited within certain periods. Bract fol. 52.

Omnee homines apt liberi sunt aut servi. All men are freemen or slaves. Inst. 1, 3, pr.; Fleta, L 1, a 1, { 2.

Omnes lioentium habere .his quae pre se indulta sunt, renuneiare. [It is a rule of the ancient law that] all persons shall have liberty to renounce those privileges which have been conferred for their benefit. Cod'. X 3, 51; Id. 2, 3, 29; Broem, MaX. 699.

‘ • • • . ¡

Omnes prudentes ilia admittere solent quts proban tur iiu qui in arte sua bene versa ti sunt. All prudent men are :accu» tomed to admit those things which are ap- proved by those who are well versed In the art 7 Coke, 19.

Omnes sorores sunt quasi unus hares de una hsereditate. Co. Litt 67. All sis- ters are, as it were, one heir to one inherit- ance.

OMNI EXCEPTfONE MAJUS. 4 Inst 262. Above all exception.

Omnia delicta in aperto lcviora sunt.

All crimes that are committed openly are lighter, [or have a less odious appearance than those committed secretly.] 8 Coke, 127a.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Omne actum ab intentione agentis est judicandum — every act is to be judged by the intention of the doer]**

The entry quotes the maxim that every act is to be judged by the intention of the doer.

Why: Genuine because it is quoted verbatim in the entry from Branch, Princ.; it states the intent principle underlying mens rea, recorded as the entry's own cited authority.

**[Maxim: Omne crimen ebrietas et incendit et detegit — drunkenness both inflames and reveals every crime]**

The entry quotes Coke's maxim that drunkenness both inflames and reveals every crime.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 247a, 4 Bl. Comm. 26, and Broom, Max. 17; recorded as the entry's own cited authorities on intoxication in criminal law.

**[Scripture] — Scripture**

**[James 4:17, KJV]**

"Therefore to him that knoweth to do good, and doeth it not, to him it is sin."

Why: Omittance is forbearance — the not-doing; the verse makes the known good undone itself a fault — the sin of omission. Not deity speech — no flag.

## OMNIA PEKFORMAVIT.

He has done all. In pleading. A good plea in bar where all the covenants are in the affirmative. Bailey r. Rogers, 1 Me. 189.

Omnia prsssumuntur contra spoliator rem. All things are presumed against a despoiler or wrong-doer. A leading maxim in the law of evidence. Best, Bv. p. 340, f 303 ; Broom, Max. 938.

Omnia prsssumuntur legitime facta do- nee probe tur in eontrarium. All things are presumed to be lawfully done, until proof

be made to the contrary. Co. Lltt. 232b; Rest, Ev. p. 337, f 300.

Omnia prcnunnotnr rite et solemnl- ter ease acts donee probetur In oontra- rism. All things are presumed to have been rightly and duly performed until it is proved to the contrary. Co. Lift. 232; Broom, Max. 944.

Omnia pr«esumuntur solemnlter esse acta. Co. Litt 6. All things are presumed to have been done rightly.

Omnia quae Jure con trail nntnr contra- rlo jure perennt. Dig. 50, 17, 100. All things which are contracted by law perish by a contrary law.

Omnia quse aunt uxoris aunt ipaiua vlri. All things which are the wife’s are the husband’s. Bract, fol. 32; Co. Lltt 112a. See 2 Kent Comm. 130-143.

Omnia rite acta prasumuatur. All

things are presumed to have been rightly done. Broom, Max. 044. UTERX FEK VENEDIKT, SALUTEM.

To all to whom the present letters shall come, greeting. A form of address with which char- ters and deeds were anciently commenced.

OMHIBU8 BILL. 1. In legislative prac- tice, a bill including in one act various sep- arate and distinct matters, and particularly one joining a number of different subjects in one measure in such a way as to compel the executive authority to accept provisions which he does not approve or else defeat the whole enactment See Com. ▼. Barnett 109 Pa. 161, 48 Atl. 977, 55 L. R. A. 882; Yea- ger v. Weaver, 64 Pa. 425.

2. In equity pleading, a bill embracing the whole of a complex subject-matter by uniting all parties in interest having adverse or con- flicting claims, thereby avoiding circuity or multiplicity of action.

Omuls actio eat loquela. Every action is a plaint or complaint. Co. Litt. 292a.

Omuls eonelusio beni et verl judleil sequitur ez bonis et veils prse missis et dictis juratorum. Every conclusion of a good and true judgment follows from good and true premises, and the verdicts of Jurors. Co. Litt 226b.

Omuls consensus tollit errorem. Every consent removes error. Consent always re- moves the effect of error. 2 Inst. 123.

Omuls defimitio in Jure drill perieu- losa est, parum eat enim ut non sub- vert! possit. Dig. 50, 17, 202. All definition in the civil law is hazardous, for there is little that cannot be subverted.

Omuls defimitio In lege perieulosa. AU

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definition in law is hazardous. 2 Wood. Lect 190.

Omuls ezeeptlo est ipsa quoque regain.

Every exception is itself also a rule.

Omuls indemuatns pro innozis legtbus babetur. Every uncondemned person is held by the law as innocent Lofft, 121.

Omuls lnnovatio plus novitate pertur- bat quam ultilitate prodest. Every Inno- vation occasions more harm by Its novelty than benefit by its utility. 2 Bulst 338; Broom, Max. 147.

Omuls interpretatio si fieri potest ita flenda est In lnstrumentis, ut o nines eon- trarietates amoveautur. Jenk. Cent. 96. Every interpretation, if it can be done, is to be so made in instruments that all contra- dictions may be removed.

Omuls interpretatio vel declarat, vel extendit, vel restriugit. Every interpreta- tion either declares, extends, or restrains.

Omuls nova oonstitutio futuris fou- ntain imponere debet, non prseteritla.

Every new statute ought to prescribe a form to future, not to past, acts. Bract, fol. 228; 2 Inst. 95.

Omuls persona est bomo, sed non vi» eissim. Every person is a man, but not ev- ery man a person. Calvin.

Omuls privatlo prnsupponlt babitum.

Every privation presupposes a former enjoy- ment. Co. Litt 339a. A "rule of philoso- phic” quoted by Lord Coke, and applied to the discontinuance of an estate.

Omuls querela et omuls actio injurla- rum limita est infra certa tempora. Co.

Lltt 114b. Every plaint and every action for injuries is limited within certain times.

Omuls ratlbabitio retrotrabltur et mandato priori saqulparatur. Every rat- ification relates back and is equivalent to a prior authority. Broom, Max. 757, 871; Chit Coni. 196.

Omuls regula sues patitur exceptiones.

Every rule is liable to its own exceptions.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Omnia praesumuntur contra spoliatorem — all things are presumed against a despoiler or wrong-doer]**

The entry quotes the leading evidence maxim that all things are presumed against a despoiler.

Why: Genuine because it is quoted verbatim in the entry, which itself calls it 'a leading maxim in the law of evidence' (Best, Ev. p. 340; Broom, Max. 938); recorded as the entry's own cited authority.

**[Scripture] — Scripture**

**[John 17:4, KJV]**

"I have finished the work which thou gavest me to do."

Why: The plea is 'he has done all' — full performance as a bar; Christ's words are the perfect performance plea — the work given, finished. Christ's verbatim words — flagged per the red-letter rule.

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## OMNIUM.

In mercantile law. A term used to express the aggregate value of the different stock in which a loan is usually funded. Tomlins.

Omnium contributions sarciatur quod pro omnibus datum est. 4 Bing. 12L That which is given for all is recompensed by

ONEROUS

the contribution of all. A principle of the law of general average.

Omnium rerun qnnnun nine eat, po- tent eaae abnmi, virtnte nolo except*.

There may be an abuse of everything of which there Is a use, virtue only excepted. Dav. Ir. K. B. 79.

ON ACCOUNT, lu part payment ; in par- 'tial satisfaction of an account The phrase Is usually contrasted with “In full.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Omnium contributione sarciatur quod pro omnibus datum est — that which is given for all is recompensed by the contribution of all]**

The entry quotes the general-average principle that what is given for all is made good by the contribution of all.

Why: Genuine because it is quoted verbatim in the entry from 4 Bing. 121, which the entry itself identifies as 'a principle of the law of general average'; recorded as the entry's own cited authority.

## ON ACCOUNT OF WHOM IT MAT / CONCERN.

When a policy of Insurance expresses that the Insurance Is made “on ac- count of whom it may concern,” it will cover all persons having an Insurable Interest in the subject-matter at the date of the policy and who were then contemplated by the par- ty procuring the Insurance. 2 Pars. Mar. Law, 30.

5e apparatus — Not carried into the 5th edition (1979).

## ON CALL.

There is no legal difference between an obligation payable “when de- manded” or “on demand” and one payable “on call” or "at any time called for.” In each case the debt Is payable immediately. Bowman v. McChesuey, 22 Grat. (Va.) 609.

5e apparatus — Carried into the 5th edition (1979).

## ON CONDITION.

These words may be construed to mean “on the terms,” in order to effectuate the intention of parties. Mea- nor v. McKowan, 4 Watts & S. (Pa.) 302.

5e apparatus — Not carried into the 5th edition (1979).

## ON DEFAULT.

In case of default; upon failure of stipulated action or performance; upon the occurrence of a failure, omission, or neglect of duty.

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5e apparatus — Carried into the 5th edition (1979).

## ON DEMAND.

A promissory note pay- able “on demand” is a present debt, and is payable without any demand. Young v. Weston, 39 Me. 492 ; Appeal of Andress, 99 Pa 421.

5e apparatus — Carried into the 5th edition (1979).

## ON FILE.

Piled; entered or placed upon the files; - existing and remaining upon or among the proper flies. Slosson v. Hall, 17 Minn. 95 (GU. 71) ; Snider v. Methvin, 60 Tex. 487.

5e apparatus — Not carried into the 5th edition (1979).

## ON OR ABOUT.

A phrase used in re- citing the date of an occurrence or convey- ance, to escape the necessity of being bound by the statement of an exact date.

5e apparatus — Carried into the 5th edition (1979).

## ON OR BEFORE.

These words, Insert- ed In a stipulation to do an act or pay mon- ey, entitle the party stipulating to perform at any time before the day; and upon per- formance, or tender and refusal, he Is im- mediately vested with all the rights which would have attached if performance were made on the day. Wall v. Simpson, 6 J. J. Marsh. (Ky.) 156, 22 Am. Dec. 72.

Once a fraud, always a fraud. 13 VIn. Abr. 539.

5e apparatus — Carried into the 5th edition (1979).

## ONCE A MORTGAGE, ALWAYS A / MORTGAGE.

This rule signifies that an Instrument originally intended as a mort- gage, and not a deed, cannot be converted into anything else than a mortgage by any subsequent clause or agreement.

Once a recompense, always a recom- pense. 19 Vln. Abr. 277.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: equity will not permit a clog on the equity of redemption]**

The rule protects the equity of redemption: equity will not permit a mortgagor's right to redeem to be clogged or fettered by any subsequent agreement.

Why: Genuine because 'once a mortgage, always a mortgage' is the classic statement of the anti-clogging rule; the axiom names the equitable principle the entry's rule serves rather than re-quoting the rule.

## ONCE IN JEOPARDY.

A phrase used to express the condition of a person charged with crime, who has once already, by legal proceedings, been put in danger of conviction and punishment for the same offense. See Com. v. Fitzpatrick, 121 Pa. 109, 15 AtL 466, 1 L. R. A. 451, 6 Am. St.

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Rep. 757.

Oaoe quit and cleared, ever quit and cleared. (Scotch, anls quit and denged, ay quit and clenged.) Skene, de Verb. Sign, voc. “Iter.,” ad fln.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — double jeopardy]**

Double jeopardy: no person shall be twice put in jeopardy of life or limb for the same offense.

Why: Genuine because the entry defines the condition of one already put in danger of conviction and punishment for the same offense; the Fifth Amendment clause is the governing American authority for the protection.

**[Scripture] — Scripture**

**[Nahum 1:9, KJV]**

"What do ye imagine against the LORD? he will make an utter end: affliction shall not rise up the second time."

Why: Once in jeopardy is the bar against a second trial for the same offense; 'affliction shall not rise up the second time' is the traditional scriptural warrant for that bar. Third-person prophecy — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Beresford, Double Jeopardy, 1999]**

(paraphrase) The thriller's entire premise turns on the rule the entry states: acquitted once of the killing by legal proceedings, she cannot be put in danger of conviction and punishment for the same offense again. (paraphrase)

Why: Entry: a person once already, by legal proceedings, put in danger of conviction and punishment for the same offense. The film dramatizes precisely this doctrine. Marked paraphrase — premise certain, no dialogue quoted.

## ONCUNNE.

L. FT. Accused. Du Cange.

5e apparatus — Carried into the 5th edition (1979).

## ONE HUNDRED THOUSAND POUNDS / CLAUSE.

A precautionary stipulation in- serted in a deed making a good tenant to the prwcipe in a common recovery. See 1 Prest Conv. 110.

5e apparatus — Not carried into the 5th edition (1979).

## ONE-THIRD NEW FOR OLD.

See

New for Oed.

5e apparatus — Not carried into the 5th edition (1979).

## ONERANDO PRO RATA PORTIONIS.

A writ that lay for a joint tenant or tenant in common who was distrained for more rent than his proportion of the land comes to. Reg. Orig. 182.

5e apparatus — Not carried into the 5th edition (1979).

## ONERARI NON.

In pleading. The name of a plea, in an action of debt, by which the defendant says that he

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ought not to be charged.

5e apparatus — Not carried into the 5th edition (1979).

## ONERATIO.

Lat A lading; a cargo.

5e apparatus — Not carried into the 5th edition (1979).

## ONERATUR NISI.

See O. Ni.

5e apparatus — Not carried into the 5th edition (1979).

## ONERIS FERENDI.

Lat. In the civil law. The servitude of support; a servitude by which the wall of a house is required to sustain the wall or beams of the adjoining house.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 6:2, KJV]**

"Bear ye one another's burdens, and so fulfil the law of Christ."

Why: The servitude of support requires one's wall to sustain the adjoining house; the verse commands the same structure in morals — bearing another's load. Not deity speech — no flag.

## ONEROUS.

A contract, lease, share, or other right is said to be “onerous” when the obligations attaching to it counter-balance or exceed the advantage to be derived from it, either absolutely or with reference to the particular possessor. Sweet.

As used in the civil law and in the systems derived from it, (French, Scotch, Spanish. Mexican.) the term also means based upon, supported by, or relating to a good and valoable consideration, i. e., one which imposes a burden or charge in return for the benefit conferred.

—Onerous cause. In Scotch law. A good and legal consideration.— Onerous contract. See Contbact.— Onerous deed. In Scotch law. A deed given for a valuable consideration. Bell . — Onerous gift. A gift made subject to certain charges imposed by the donor on the donee.— Onerons title. A title acquired by the giving of a valuable consideration, as the pay- ment of money or rendition of services or the performance of conditions or assumption or dis- charge of liens or charges. Scott v. Ward, 13 Cal. 458; Kircher v. Murray (C. C.) 04 Fed. 617: Noe v. Card, 14 Cal. 576; Civ. Code La. 1900, art. 3556.

ONOMASTIC, A term applied to the signature of an instrument, the body of which is in a different handwriting from that of the signature.. Best, Ev. 315.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 11:30, KJV]**

"For my yoke is easy, and my burden is light."

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Why: Onerous is the obligation whose burdens exceed its advantage; Christ's yoke is the counterpoint — a burden that is light. Christ's verbatim words — flagged per the red-letter rule.

## ONBOEBENDE AND VAST STAAT.

Dutch. Immovable and fast estate, that is, land or real estate. The phrase is used in Dutch wills, deeds, and antenuptial contracts of the early colonial period in New York. See Spraker v. Van Alstyne, 18 Wend. (N. Y.) 208.

5e apparatus — Not carried into the 5th edition (1979).

## ONUS.

Lat A burden or load ; a weight The lading, burden, or cargo of a vessel A charge ; an incumbrance. Cum onere, ( q . v.,) with the incumbrance.

—Onus episcopate. Ancient customary pay- ments from the clergy to their diocesan bishop, of synodals, pentecostals, etc.— Onus Impor- tandi. The charge of importing merchandise, mentioned in St. 12 Car. II. c. 28.— Ons p ro- ta andi. Burden of proving; the burden of proof. The strict meaning of the term “onus probandi" is that, if no evidence is adduced by the party on whom the burden is cast, the issue must be found against him. Davis v. Rogers, 1 Houst (Del.) 44.

OPE OONSH.IO. Lat By aid and coun- sel. A civil law term applied to accessaries, similar in import to the “aiding and abetting" .of .the common law. Often written "ope et consilio.” Burrlll.

OPEN, v. To render accessible, visible, or available; to submit or subject to examina- tion, inquiry, or review, by the removal of restrictions or impediments.

—Open a ease. In practice. To open a case is to begin it ; to make an initiatory explana- tion of its features to the court, jury, referee, etc., by outlining the nature of the transaction on which it is founded, the questions involved, and the character and general course of the evidence to be adduced.— Open a commission. To enter upon the duties under a commission, or commence to act under a commission, is so termed in English law. Thus, the judges of assise and m*» print derive their authority to act under or by virtue of commissions directed to them for that purpose ; and, when they com- mence acting under the powers so committed to them, they are said to open the commissions; and the day on which they so commence their proceedings is thence termed the “commission day of the assizes.’’ Brown. — Open a court. To open a court is to make a formal announce- ment, usually by the crier or bailiff, that its

session has now begun and that the business be- fore the court will be proceeded with.— Open a credit. To accept or pay the draft of a cor- respondent who has not furnished funds. Par- dessue, no. 296. — Open a deposition. To break the seals by which it was secured, and lay it open to view, or to bring it into court ready for use.— Open a Judgment. To lift or relax the bar of finality and conclusiveness which it imposes so as to permit a re-examination of the merits of the action in which it was rendered. This is done at the instance of a party show- ing good cause why the execution of the judg- ment would be inequitable. It so far

annuls the' judgment as to prevent its enforcement until the final determination upon it, but does not in the mean time release its lien upon real estate. See Insurance Co. v. Beale, 110 Pa. 321, 1 Atl. 926. —Open a rule. To restore or recall a rule which has been made absolute to its conditional state, as a rule nisi, so as to readmit of cause being shown against the rule. Thus, when a rule to show cause has been made absolute un- der a mistaken impression that no counsel had been instructed to show cause against it, it is usual for the party at whose instance the rule was obtained to consent to have the rule opened, by which all the proceedings subsequent to the day when cause ought to have been shown against it are in effect nullified, and the rule is then argued in the ordinary way. Brown.— Open a street or highway. To establish it by law and make it passable and available for public travel. See Reed v. Toledo, 18 Ohio, 161 ; Wllcoxon v. San Luis Obispo, 101 Cal. 508, 35 Pac. 988; Gaines v. Hudson County Ave. Com'rs, 37 N. J. Law, 12.— Open bids. To open bids received on a foreclosure or other judicial sale is to reject or cancel them for fraud, mistake, or other canse, and order a re- sale of the property. Andrews v. Scotton, 2 Bland (Md.) 644.— Open the pleadings. TO state briefly at a trial before a jury the sub- stance of the pleadings. This is done by the junior counsel for the plaintiff at the commence- ment of the trial.

OPEN, ad}. Patent; visible; apparent; notorious ; not clandestine ; not closed, set- tled, fixed, or terminated.

— Open hnlh. In the mass ; exposed to view ; not tied or sealed up. In re Sanders (C. C.). 52 Fed. 802, 18 L. R. A. 549.— Open court. This term may mean either a court which has been formally convened and declared open for the transaction of its proper judicial business, or a court which is freely open to the approach of ail decent and orderly persons In the character of spectators. Hobart v. Hobart, 45 Iowa, 501 ; Conover v. Bird, 56 N. J. Law, 228, 28 Atl. 428 ; Ex parte Branch, 63 Ala. 383 ; Hays v. Railroad Co., 99 Md. 413, 58 Atl. 439.— Open doors. In Scotch law. “Letters of open doors” are process which empowers the messenger, or officer of the law, to break open doors of houses or rooms in which the debtor has placed his goods. Bell.— Open fields, or meadows. In English law. Fields which are undivided, but belong to separate owners ; the part of each owner is marked off by boundaries until the crop has been carried off, when the pasture is shared promiscuously by the joint herd of all the owners. Elton, Commons, 31 ; Sweet- Open law. The making or waging of law. Magna Charts, c. 21.— Open season. That portion of the year wherein the laws for the preservation of game and fish permit the killing of a particular species of game or the taking of a particular variety of fish.— Open theft. In Saxon law. The same with the Latin “ fm- tum manifestum," (q. o.)

As to open “Account,” “Corporation,” “Eta- try.” “Insolvency,” “Lewdness.” “Policy,” “Possession,” and “Verdict” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## OPENING.

Ia American practice. The beginning; the commencement; the first ad- dress of the counsel.

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5e apparatus — Not carried into the 5th edition (1979).

## OPENTIDE.

The time after com Is car- ried out of the fields.

5e apparatus — Not carried into the 5th edition (1979).

## OPEBA.

A composition of a dramatic hind, set to music and sung, accompanied with musical instruments, and enriched with appropriate costumes, scenery, etc. The house In which operas are represented Is termed an “opera-house.” Rowland v. Kleber, 1 Plttsb. B. (Pa.) TL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## OPERA HIT.

Such tenants, under feudal tenures, as held some little portions of land by the duty of performing bodily labor and servile works for their lord.

5e apparatus — Not carried into the 5th edition (1979).

## OPERATIO.

One day’s work performed by a tenant for his lord.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:9, KJV]**

"Six days shalt thou labour, and do all thy work."

Why: The operatio is the day's work as a measured unit of service; the commandment ordains the day as the unit of labor. Spoken by God in the Decalogue — flagged per the red-letter rule.

## OPERATION.

In general, the exertion of power; the process of operating or mode of action; an effect brought about In ac- cordance with a definite plan. See Little Rock t. Parish, 36 Ark. 166; Fleming Oil Ca v. South Penn Oil Co., 37 W. Va. 653, 17 &

E. 203. In surgical practice, the term is of indefinite import, but may be approximately defined as an act or succession of acts per- formed upon the body of a patient, for his relief or restoration to normal conditions, either by manipulation or the use of surgical Instruments or both, as distinguished from therapeutic treatment by the administration of drugs or other remedial agencies. See Akridge T. Noble, 114 Ga. 949, 41 S. E. 78.

—Criminal operation. In medical jurispru- dence. An operation to procure an abortion. Miller v. Bayer, 94 Wia. 123, 68 N. W. 869.— Operation of law. This term expresses the manner in which rights, and sometimes liabili- ties, devolve upon a person by the mere appli- cation to the particular transaction of the es- tablished rules of law, without the act or co- operation of the party himself.

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## OPERATIVE.

A workman ; a laboring man ; an artisan ; particularly one employed in factories. Cocking v. Ward (Tenn. Ch. App.) 48 S. W. 287 ; In re City Trust Co., 121 Fed. 706, 58 C. C. A. 126; Rhodes v. Mat- thews, 67 Ind. 131.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

"And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire."

Why: The operative is the laboring man; the verse states the laborer's right — worthy of his hire. Christ's verbatim words — flagged per the red-letter rule.

## OPERATIVE PART.

That part of a conveyance, or of any instrument Intended for the creation or transference of rights, by which the main object of the instrument is carried into effect. It is distinguished from' introductory matter, recitals, formal conclu- sion, etc.

OPERATIVE WORDS, in a deed or lease, are the words which effect the trans- action intended to be consummated by the instrument .

5e apparatus — Carried into the 5th edition (1979).

## OPERI8 NOVI NDNTIATIO.

Lat In

the civil law. A protest or warning against [of] a new work. Dig. 39, 1.

5e apparatus — Not carried into the 5th edition (1979).

## OPETXDE.

The ancient time of marriage, from Epiphany to Ash- Wednesday.

Opinio est duplex, seilioet, opinio vul- garis, orta inter graves et discretos, et «w vultum veritatis habett et opinio tantnm orta inter levee et vnlgares homi- nes, absque specie veritatis. 4 Coke, 107. Opinion is of two kinds, namely, common opinion, which springs up among grave and discreet men, and which has the appearance of truth, and opinion which springs up only among light and foolish men, without the semblance of truth.

Opinio quae favet test amen to est te- nenda. The opinion which favors a will is to be followed. 1 W. Bl. 13, arg.

OPINION. 1. In the law of evidence, opinion is an Inference or conclusion drawn by a witness from facts some of which are known to him and others assumed, or drawn from facts which, though lending probability to the inference, dd not evolve it by a pro- cess of absolutely necessary reasoning. See Lipscomb v. State, 75 Miss. 559, 23 South. 210.

An inference necessarily involving certain facts may be stated without the facts, the in- ference being an equivalent to a specification of the facts ; but, when the facts are not neces- sarily involved in the inference (e. p., when the inference may be sustained upon

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either of sev- eral distinct phases of fact, neither of which it necessarily involves,) then the facts must be stated. Whart. Ev. ) 510.

2. A document prepared by an attorney for his client, embodying his understanding of the law as applicable to a state of facts submitted to him for that purpose.

3. The statement by a judge or court of the decision reached In regard to a cause tried or argued before them, expounding the law as applied to the case, and detailing the reasons upon which the judgment is based. See Craig v. Bennett, 158 Ind. 9, 62 N. E. 273 ; Coffey v. Gamble, 117 Iowa, 545, 91 N.

W. 813 ; Houston v. Williams, 13 Cal. 24, 73 Am. Dec. 565; State v. Ramsburg, 43 Md. 333.

— Concurring opinion. An opinion, separate from that which embodies the views and decision of the majority of the court, prepared and filed by a judge who agrees in the general result of the decision, and which either reinforces the majority opinion by the expression of the par- ticular judge’s own views or reasoning, or (more commonly) voices his disapproval of the grounds of the derision or the arguments on which It was based, though approving the final result.— Dissenting opinion. A separate opinion in which a particular judge announces Ins dissent from the conclusion held by a majority of the court, and expounds his own views.— Per curi- um opinion. One concurred in by the entire court, but expressed as being “ per curiam” or “by the court,” without disclosing the name of. any particular judge as being ita author.

Oportet quod eerta res dedueatnr la donationem. It Is necessary that a certain thing be brought Into the gift, or made the subject of the conveyance. Bract, fol. 156.

Oportet quod cert* res dedueatnr la Judicium. Jenk. Cent. 84. A thing certain must be brought to judgment

Oportet quod eerta sit res qua vendl- tur. It Is necessary that there should be a certain thing which is sold. To make a valid sale, there must be certainty as to the thing which Is sold. Bract fol. 816.

Oportet quod eerta persona, terra, et eertl status eompreheadantur la deelara- tlone usuum. 9 Coke, 9. It is necessary that given persons, lands, and estates should be comprehended in a declaration of uses.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Opinio est duplex, scilicet, opinio vulgaris, orta inter graves et discretos, et quae vultum veritatis habet; et opinio tantum orta inter leves et vulgares homines, absque specie veritatis — opinion is of two kinds: common opinion, which springs up among grave and discreet men and has the face of truth; and mere opinion, sprung among light and vulgar men, without show of truth]**

The entry quotes Coke's twofold division of opinion: common opinion among grave and discreet men bearing the appearance of truth, versus mere opinion among the vulgar without it.

Why: Genuine because it is quoted verbatim in the entry from 4 Coke, 107; recorded as the entry's own cited authority.

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## OPPIGNERARE.

Lut In the civil law. To pledge. Calvin.

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**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

"If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down."

Why: Oppignerare is to pledge; the verse is the Torah's pledge-law — the taking and the timed return of the pledge. Third-person command — no flag.

## OPPOSER.

An officer formerly belong- ing to the green-wax in the exchequer.

5e apparatus — Not carried into the 5th edition (1979).

## OPPOSITE.

An old word for “oppo- nent.”

5e apparatus — Carried into the 5th edition (1979).

## OPPOSITION.

In bankruptcy prac- tice. Opposition is the refusal of a creditor to assent to the debtor’s discharge under the bankrupt law.

In Prenob law. A motion to open a judg- ment by default and let the defendant In to a defense.

5e apparatus — Carried into the 5th edition (1979).

## OPPRESSION.

The misdemeanor com- mitted by a public officer, who under color of his office, wrongfully inflicts upon .any person any bodily harm, imprisonment, or other injury. 1 Russ. Crimes, 297; Steph. Dig. Crlrn. Law, 71. See U. S. v. Deaver (D. C.) 14 Fed. 597.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 242 — deprivation of rights under color of law]**

The modern federal analogue of the common-law misdemeanor of oppression is the criminal prohibition on willful deprivation of rights under color of law.

Why: Genuine because the entry defines oppression as a public officer wrongfully inflicting injury 'under color of his office'; § 242 is the current federal statute criminalizing official abuse under color of law, showing...

**[Scripture] — Scripture**

**[Isaiah 10:1-2, KJV]**

"Woe unto them that decree unrighteous decrees, and that write grievousness which they have prescribed; To turn aside the needy from judgment, and to take away the right from the poor of my people."

Why: Oppression is the public officer's wrongful injury under color of office; the woe falls on rulers who decree unrighteousness and take away the poor's right. The prophet's speech, not deity speech — no flag.

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

Chuck D's hook names the same power Black's defines as the oppressor — public authority inflicting injury under color of office — and answers it with organized resistance. The song is the genre's definitive anti-oppression anthem.

Why: Black's 2e defines OPPRESSION as the misdemeanor of a public officer who 'under color of his office, wrongfully inflicts upon any person any bodily harm, imprisonment, or other injury.' The quoted line is verbatim-cer...

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Tempest, 1611]**

“You taught me language, and my profit on't / Is, I know how to curse.”

Why: Caliban answering his oppressor in the tongue he was given — the oppressed/oppressor relation the entry names, in two lines. Short verbatim quote, certain (Act 1, sc. 2).

## OPPRESSOR.

A public officer who un- lawfully uses his authority by way of oppres-. Sion, (g. v.)

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 22:16, KJV]**

"He that oppresseth the poor to increase his riches, and he that giveth to the rich, shall surely come to want."

Why: The oppressor unlawfully uses authority by way of oppression; the proverb names his end — oppression for gain comes to want. Not deity speech — no flag.

## OPPROBRIUM.

In the civil law. Ig- nominy; infamy; shame.

Optima eat legis Interpret consuetude.

Custom is the best interpreter of the law. Dig. 1, 3, 37; Broom, Max. 931; Lofft, 237.

Optima eat lez quae minimum rellnqult ar bitrio judiels; optlmus judex qui mini- mum albi. That law is the best which leaves least to the discretion of the judge; that judge is the best who leaves least to his own. Bac. Aphorisms, 46; 2 Dwar. St. 782. That system of law Is best which confides as little as possible to the discretion of the judge; that judge the beet who relies as little as possible on his own opinion. Broom, Max. 84; 1 Kent, Comm. 478.

Optima atatuti intcrpretatrlz cat (om- nibus partleulis ejuadem inspeetia) ip- aum atatutum. The best interpreter of a statute is (all its parts being considered) the statute itself. Wing. Max. p. 239, max. 68 ; 8 Coke, 1176.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Optima est legis interpres consuetudo — custom is the best interpreter of the law]**

The entry quotes the maxim that custom is the best interpreter of the law.

Why: Genuine because it is quoted verbatim in the entry from Dig. 1,3,37, Broom, Max. 931, and Lofft, 237; recorded as the entry's own cited authorities.

**[Maxim: Optima est lex quae minimum relinquit arbitrio judicis — that law is best which leaves**

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**least to the discretion of the judge]**

The entry quotes the maxim that the best law leaves least to the judge's discretion.

Why: Genuine because it is quoted verbatim in the entry; recorded as the entry's own cited maxim on legal certainty.

## OPTIMACY.

Nobility ; men of the high- est rank.

Optimam esse legem, quae minimum re- llnqult arbltrlo judicial Id quod oertl- tudo ejus prsestat. That law is the best which leaves the least discretion to the judge; and this is an advantage which re- sults from its certainty. Bac. Aphorisms, 8.

Optlmus Interpres rerum us us. Use or

usage is the best interpreter of things. 2 Inst. 282 ; Broom, Max. 917, 930, 931.

Optlmus interpretandi modus eat ala leges interpretari ut leges legibus con- cordant. 8 Coke, 169. The best mode of Interpretation is so to interpret laws that they may accord with each other,

Optlmus legum Interpres eonsuetudo.

4 Inst 75. Custom is the best interpreter of the laws.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Optimum esse legem, quae minimum relinquit arbitrio judicis; id quod certitudo ejus praestat — that law is best which leaves the least discretion to the judge; and this is an advantage which results from its certainty]**

The entry quotes Bacon's aphorism that the best law leaves the least discretion to the judge, an advantage resulting from its certainty.

Why: Genuine because it is quoted verbatim in the entry from Bac. Aphorisms, 8; recorded as the entry's own cited authority.

**[Maxim: Optimus interpres rerum usus — use or usage is the best interpreter of things]**

The entry quotes the maxim that use or usage is the best interpreter of things.

Why: Genuine because it is quoted verbatim in the entry; recorded as the entry's own cited maxim.

**[Humanity] — Humanity / Fiction & Film**

**[Plato, Republic, c. 380 BCE]**

(paraphrase) Plato's philosopher-kings — the classical 'rule by the best,' the ideal form behind the entry's 'men of the highest rank.' (paraphrase)

Why: Entry: nobility; men of the highest rank. The Republic's aristocracy (rule by the best) is the classical root of the concept. Marked paraphrase.

## OPTION.

In English ecclesiastical law. A customary prerogative of an archi bishop, when a bishop is consecrated by him, to name a clerk or chaplain of his own to be provided for by such suffragan bishop; in lieu of which it is now usual for the bishop to inuke over by deed to the archbishop, his executors and assigns, the next presentation of such dignity or benefice in the bishop’s disposal within that see, as the archbishop himself shall choose, which is

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therefore call- ed his “option.” 1 BL Comm. 381 ; 3 Steph. Comm. 63, 64; Cowell.

In contracts. An option is a privilege existing in one person, for which he has paid money, which gives him the right to buy cer- tain merchandise or certain specified securi- ties from another person, if he chooses, at any time within an agreed period, at a fixed price, or to sell such property to such other person at an agreed price and time. If the option gives the choice of buying or not buy- ing, it is denominated a “call.” If it gives the choice of selling or not, it is called a “put” If it is a combination of both these, and gives the privilege of either buying or selling or not, it is called a "straddle” or a “spread eagle.” These terms are used on the stock-exchange. See Tenney v. Foote, 95 111. 99; Plank v. Jackson, 128 Ind. 424, 26 N. E. 568; Osgood v. Bauder, 75 Iowa, 550, 39 N. W. 887, 1 L. R. A. 655.

5e apparatus — Carried into the 5th edition (1979).

## OPTIONAL WRIT.

In old England prac- tice. That species of original writ other- wise called a “ pracipc ,” which was framed in the alternative, commanding the defendant to do the thing required, or show the rea- sod wherefore he had not done It 3 Bl. Com m. 274.

5e apparatus — Carried into the 5th edition (1979).

## OPUS.

Lat Work; labor; the product of work or labor.

— Opus locatum. The product of work let for use to another; or the hiring out of work or labor to be done upon a thing.— Optra n«n- lficum. In old English law. Labor done by the hands; manual labor; such as making a hedge, digging a ditch. Fleta, lib. 2, c. 48, f 3. — Opus novum. In the civil law. A new work. By this term was meant something new- ly built upon land, or taken from a work al- ready erected. He was said opus novum facere (to make a new work) who, either by building or by taking anything away, changed the former appearance of a work. Dig. 39, 1, X, XI.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 14:23, KJV]**

"In all labour there is profit: but the talk of the lips tendeth only to penury."

Why: Opus is work, labor, and its product; the proverb states labor's fruit — in all labour there is profit. Not deity speech — no flag.

## OR.

A term used In heraldry, and signi- fying gold; called “sol” by some heralds when It occurs in the arms of princes, and “topaz” or “carbuncle” when borne by peers. Engravers represent it by an indefinite num- ber of small points. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## ORA.

A Saxon coin, valued at sixteen pence, and sometimes at twenty pence.

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5e apparatus — Not carried into the 5th edition (1979).

## ORACOLOM.

In the civil law. The name of a kind of response or sentence given by the Roman emperors.

5e apparatus — Not carried into the 5th edition (1979).

## ORAL.

Uttered by the mouth or In words; spoken, not written.

—Oral contract. One which is partly in writ- ing and partly depends on spoken words, or none of which is in writing; one which, in so far as it has been reduced to writing, is incomplete or expresses only a part of what is intended, but is completed by spoken words ; or one which, orig- inally written, has afterwards been changed orally. See Snow v. Nelson (0. C.) 113 Fed. 353 ; Railway Passenger, etc., Ass'n v. Loomis, 142 111. 560, 32 N. E. 424.— Oral pleading;. Pleading by word of mouth, in the actual pres- ence of the court. This was the ancient mode of pleading in England, and continued to the reign of Edward III. Stepb. Pi. 23-26.— Oral testimony. That which is delivered from the lips of the witness. Bates' Ann. St. Ohio 1904, f 5262 ; Rev. St. Wyo. 1899, S 3704.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 12:37, KJV]**

"For by thy words thou shalt be justified, and by thy words thou shalt be condemned."

Why: The oral — the spoken word — is legally operative in the oral contract; Christ's words make spoken words the ground of justification and condemnation. Christ's verbatim words — flagged per the red-letter rule.

## ORANDO PRO REGE ET REGNO.

An ancient writ which issued, while there was no standing collect for a sitting parlia- ment, to pray for the peace and good govern- ment of the realm.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 29:7, KJV]**

"And seek the peace of the city whither I have caused you to be carried away captives, and pray unto the LORD for it: for in the peace thereof shall ye have peace."

Why: The writ's whole purpose was prayer for the peace and good government of the realm; the verse commands exactly that prayer for the city of one's dwelling. Jeremiah's letter, not deity speech — no flag.

## ORANGEMEN.

A party in Ireland who keep alive the views of William of Orange. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ORATOR.

The plaintiff in a cause or matter in chancery, when addressing or pe- titioning the court, used to style himself "or- ator," and, when a woman, "oratrix." But these terms have long gone into disuse, and the customary phrases now are "plaintiff" or "petitioner."

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In Roman law, the term denoted an advo- cate.

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## ORATRIX.

A female petitioner; a fe- male plaintiff in a bill In chancery was for- merly so called.

5e apparatus — Not carried into the 5th edition (1979).

## ORBATION.

Deprivation of one’s pa- rents or children, or priva'tion in general. Little used.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 14:18, KJV]**

"I will not leave you comfortless: I will come to you."

Why: Orbation is deprivation of parents — being left orphaned; 'comfortless' renders the Greek for orphaned, and Christ's promise answers it directly. Christ's verbatim words — flagged per the red-letter rule.

## ORCINUS LIBERTUS.

Lat In Ro- man law. A freedman who obtained his lib- erty by the direct operation of the will or testament of his deceased master was so called, being the freedman of the deceased, (orcinut,) not of the hares. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:36, KJV]**

"If the Son therefore shall make you free, ye shall be free indeed."

Why: The orcinus libertus obtained liberty by the direct operation of his master's will; the verse states liberty's highest form — freedom given by the Son's act. Christ's verbatim words — flagged per the red-letter rule.

## ORDAIN.

To institute or establish; to make an ordinance; to enact a constitution or law. Kepner v. Comm., 40 Pa. 124 ; U. S. v. Smith, 4 N. J. Law, 38.

5e apparatus — Carried into the 5th edition (1979).

## ORDEAL.

The most ancient species of trial, In Saxon and old English law, being peculiarly distinguished by the appellation of " judicium Dei," or “judgment of God,” it being supposed that supernatural interven- tion would rescue an innocent person from the danger of physical harm to which he was exposed in this species of trial. The or- deal was of two sorts, — either fire ordeal or water ordeal; the former being confined to persons of higher rank, the latter to the com- mon people. 4 BL Comm. 342.

—Eire ordeal. The ordeal by fire or red-hot iron, which was performed either by taking up In the hand a piece of red-hot iron, of one, two, or three pounds weight, or by walking barefoot and blindfolded over nine red-hot plowshares, laid lengthwise at unequal distances 4 Bl. Comm. 343; Cowell.

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ORDEFEE, or ORDELFE. A liberty whereby a man claims the ore found in his own land; also, the ore lying under land. Cowell.

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**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

"The lot is cast into the lap; but the whole disposing thereof is of the LORD."

Why: The ordeal was the judicium Dei — judgment of God, trusting supernatural intervention to clear the innocent; the verse states that trust's principle — the cast decided by the LORD's disposing. Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Scott, Ivanhoe, 1820]**

(paraphrase) The trial by combat staged to decide Rebecca's fate — the 'judgment of God' the entry names, with supernatural intervention expected to rescue the innocent, made narrative. (paraphrase)

Why: Entry defines ordeal as judicium Dei, fire or water, the innocent rescued by supernatural intervention. Ivanhoe's Templestowe combat is the famous fictional instance. Marked paraphrase.

## ORDELS.

In old English law. The right of administering oaths and adjudging trials by ordeal within a precinct or liberty. Cow- elL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ORDENAMIENTO.

In Spanish law. An order emanating from the sovereign, and differing from a cedula only in form and in the mode of its promulgation. Schm. Civil Law, Introd. 93, note.

5e apparatus — Not carried into the 5th edition (1979).

## ORDENAMIENTO DE ALCALA.

A

collection of Spanish law promulgated by the Cortes in the year 1348. Schm. Civil Law, Introd. 75.

5e apparatus — Not carried into the 5th edition (1979).

## ORDER.

In a general sense. A man- date, precept; a command or direction au- thoritatively given ; a rule or regulation.

The distinction between “order” and “requisi- tion” is that the first is a mandatory act, the latter a request. Mills v. Martin, 19 Johns. (N. Y.) 7.

In practice. Every direction of a court or judge made or entered In writing, and not

included in a judgment la denominated an “order.” An application for an order is a motion. Code Civ. Proc. Cal. I 1003; Code

N. Y. f 400.

Order* are also issued by subordinate legisla- tive authorities. Such are the English orders

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in council, or orders issued by the privy council in the name of the king, either in exercise of the royal prerogative or in pursuance of an act of parliament. The rules of court under the judicature act are grouped together in the form of orders, each order dealing with a particular subject-matter. Sweet.

An order is also an Informal bill of ex- change or letter of request whereby the party to whom it is addressed is directed to pay or deliver to a person therein named the whole or part of a fund or other property of the person making the order, and which is in the possession of the drawee. See Carr v. Summerfleld, 47 W. Va. 155, 34 S. E. 804 ; People v. Smith, 112 Mich. 392, 70 N. W. 460, 67 Am. St Rep. 392; State v. Nevins, 23 Vt 521.

It Is further a designation of the person to whom a bill of exchange or negotiable promissory note is to be paid.

It is also used to designate a rank, class, or division of men ; as the order of nobles, order of knights, order of priests, etc.

In French law. The name order ( ordre ) is given to the operation which has for its object to fix the rank of the preferences claimed by the creditors in the distribution of the price [arising from the sale] of an Immovable affected by their liens. Dalloz, mol “Ordre."

—Agreed order. See Aobeed. — Charging order. The name bestowed, in English prac- tice, upon an order allowed by St 1 & 2 Viet c. 110, 8 14, and 3 & 4 Viet. c. 82, to be grant- ed to a judgment creditor, that the property of a judgment debtor in government stock, or in the stock of any public company in England, corporate or otherwise, shall (whether standing in his own name or in the name of any person in trust for him) stand charged with the pay- ment of the amount for which judgment shall have been recovered, with interest, 3 Steph. Comm. 587, 588.— Decretal order. In chan- cery practice. An order made by the court of chancery, in the nature of a decree, upon a mo- tion or petition. Thompson v. McKim, 6 Har. & J. Md. 319; Bissell Carpet Sweeper Co. v. Goshen Sweeper Co., 72 Fed. 545, 19 C. C. A. 25. An order in a chancery suit made on mo- tion or otherwise not at the regular hearing of a cause, and yet not of an interlocutory nature, but finally disposing of the cause, so far as a decree could then have disposed of it. Mozley & Whitley.— Pinal order. One which either terminates the action itself, or decides some matter litigated by the parties, or operates to divest some right ; or one which completely dis- poses of the subject-matter and the rights of the nsrties. v_ Beckwith, 6 Ohio St. 254;

Entrop v. Williams, 11 Minn. 382 (Gil. 276); Struli v. Louisville & N. R. Co. (Ky.) 76 S.

W. 183.— General orders. Orders or rules of court, promulgated for the guidance of practi- tioners and the regulation of procedure in gen- eral, or in some general branch of its jurisdic- tion ; as opposed to a rule or an order made in an individual case ; the rules of court. — In- terlocutory order. “An order which decides not the cause, but only settles some Intervening matter relating to it; as when an order is

made, on a motion in chancery, for the plaintiff to have an injunction to quiet his possession till the hearing of the cause. This or any such order, not being final, is interlocutory.” Termes de la Ley.— Money order. See Monet.— Or- der and disposition of goods and

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chattels. When goods are in the “order and disposition" of a bankrupt, they go to hia trustee, and have gone so since the time of James I. Wharton. —Order niai. A provisional or conditional order, allowing a certain time within which to do some required act, on failure of which, the order will be made absolute.— Order of dis- charge. In England. An order made under the bankruptcy act of 1869, by a court of bank- ruptcy, the effect of w’hich is to discharge a bankrupt from all debts, claims, or demands provable under the bankruptcy.— Order of fil- iation. An order made by a court or judge having jurisdiction, fixing the paternity of a bastard child upon a given man, and requiring him to provide for its support— Order of re- vivor. In English practice. An order as of course for the continuance of an abated suit It superseded the bill of revivor. — Restrain- ing order. In equity practice. An order which may issue upon the filing of an applica- tion for an injunction forbidding the defendant to do the threatened act until a hearing on the application can be had. Though the term is sometimes used as a synonym of “injunction,” a restraining order is properly distinguishable from an injunction, in that the former is in- tended only as a restraint upon the defendant until the propriety of granting an injunction, temporary or perpetual, can be determined, and it does no more than restrain the pn*.*e',,ugs until such determination. Wetzateln v. Boston, etc., Min. Co., 25 Mont. 135, 63 Pac. 1043 ; State v. Lichtenberg, 4 Wash. 407, 30 Pac. 716: Riggins v. Thompson, 96 Tex. 154, 71 8. W. 14. In English law, the term is special- ly applied to an order restraining the Bank of England, or any public company, from allowing any dealing with some stock or shares specified in the order. It Is granted on motion or peti- tion. Hunt. Eq. p. 216.— Speoldmc order. An order which contains matter which la ex- planatory or illustrative of the mere direction which is given by it is sometimes thus called. Puff v. Duff, 101 Cal. 1, 35 Pac. 437.— Stop or- der. The meaning of a stop order given to a broker is to wait until the' market price of the particular security reaches a specified figure, and then to “stop” the transaction by either selling or buying, as the case may be. as well as possible. Porter v. Wormser, 94 N. Y. 431.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 8:9, KJV]**

"For I am a man under authority, having soldiers under me: and I say to this man, Go, and he goeth; and to another, Come, and he cometh."

Why: An order is a mandate authoritatively given — mandatory, not a request; the centurion's description of command is the concept's scriptural form. The centurion's speech, not deity speech — no flag.

## ORDERS.

The directions as to the course and purpose of a voyage given by the owner of the vessel to the captain or master. For other meanings, see Obdeb.

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## ORDERS OF THE DAT.

Any member of the English house of commons who wishes to propose any question, or to

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“move the house,” as it Is termed, must, in order to give the house due notice of his Intention, state the form or nature of his motion on' a previous day, and have It entered in a book termed the “order-book;” and the motions .so entered, the house arranges, shall be con- sidered on' particular days, and such motions or matters, when the day arrives for their being considered, are then termed the “or- ders of the day.” Brown. A similar prac- tice obtains in the legislative bodies of this country.

5e apparatus — Not carried into the 5th edition (1979).

## ORDINANCE.

A rule established by authority ; a permanent mle of action ; a

law or statute. In a more limited sense, the term is used to designate the enactments of the legislative body of a municipal corpora- tion. Citizens’ Gas Co. v. Elwood, 114 Ind. 332, 16 N. E. 624; State v. Swindell, 140 Ind. 527, 45 N. E. 700, 58 Am. St Rep. 375 ; Bills v. Goshen, 117 Ind. 22i, 20 N. E. 115, 3 I* R. A. 261; State v. Lee, 29 Minn. 445, 13 N. W. 913.

Strictly, a bill or law which might stand with the old law, and did not alter any statute in force at the time, and which became complete by the royal assent on the parliament roll,. with- out any entry on the statute roll. A bill or law which might at any time be amended by the parliament, without any statute. Hale, Com. Law. An ordinance was otherwise distinguish- ed from a statute by the circumstance that the latter required the threefold assent of king, lords, and commons, while an ordinance might he ordained by ope or two of these constituent bodies. See 4 Inst. 25.

The name has also been given to certain enactments, more general In their character than ordinary statutes, and serving as or- ganic laws-, yet not exactly to be called ‘‘con- stitutions.” Such was the “Ordinance for the government of the North-West Terri- tory,” enacted by congress In 1787.

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**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

"Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God."

Why: An ordinance is a rule established by authority; the verse grounds all ordained authority — 'the powers that be are ordained of God.' Not deity speech — no flag.

## ORDINANCE OF THE FOREST.

In

English law. A statute made touching mat- ters and causes of the forest 33 & 34 Edw. I.

5e apparatus — Not carried into the 5th edition (1979).

## ORDINANDI USX.

Lat The law of procedure, as distinguished from the sub- stantial part of the law.

Ordhurist ita dicitur qnla habet or- dinariam juris dictionem, la jure pro- prio, et non propter

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deputationem. Co.

Litt 96. The ordinary is so called because he has an ordinary jurisdiction in his own right and not a deputed one.

ORDINARY, n. At common law.

One who has exempt and immediate jurisdic- tion In causes ecclesiastical. Also a bishop; and an archbishop is the ordinary of the whole province, to visit and receive appeals from Inferior jurisdictions. Also a commis- sary or official of a bishop or other ecclesi- astical judge having judicial power; an archdeacon; officer of the royal household. Wharton.

In American law. A judicial officer, in several of the states, clothed by statute with powers in regard to wills, probate, adminis- tration, guardianship, etc.

In Seoteb law. A single judge of the court of session, who decides with or with- out a jury, as the case may be. Brande.

In the civil law. A judge who has au- thority to take cognizance of causes in his own right, and not by deputation. Murden

V. Beath. 1 Mill, Const. (S. C.) 269.

—Ordinary of Newgate. The clergyman who is attendant upon condemned malefactors in that prison to prepare them for death; he

records the behavior of such persons. Former- ly it was the custom of the ordinary to publish a small pamphlet upon the execution of any re- markable criminal. Wharton.— Ordinary of assise and sessions. In old English law. A deputy of the bishop of the diocese, anciently appointed to give malefactors their neck-verses, and judge whether they read or not; also to perform divine services for them, and assist in preparing them for death. Wharton.

ORDINARY, adj. Regular; usual; com- mon ; not characterized by peculiar or un- usual circumstances; belonging to, exercised by, or characteristic of, the normal or aver- age Individual. See Zulich v. Bowman, 42 Pa. 83; Chicago & A. R. Co. v. House, 172 111. 601, 50 N. E. 151; Jones v. Angell, 95 Ind. 376.

—Ordinary conveyances. Those deeds of transfer which are entered into between two or more persons, without an assurance in a supe- rior court of justice. Wharton.— Ordinary conrse of business. The transaction of busi- ness according to the usages and customs of the commercial world generally or of the par- ticular community or (in some cases) of the particular individual whose acts are under con- sideration. See Rison v. Knapp, 20 Fed. Cas. 835; Christianson v. Farmers' Warehouse Ass'n, 5 N. D. 438. 67 N. W. 300, 32 L. R.

A. 730; In re EHbblee, 7 Fed. Cas. 654.— Or- dinary repairs. Such as are necessary to make good the usual wear and tear or natural and unavoidable decay and keep the property in good condition. See Abell v. Brady, 79 Md. 94, 28 Atl. 817 ; Brenn v. Troy, 60 Barb. (N. Y.) 421; Clark Civil Tp. v. Brookshire, 114 Ind. 437, 16 N. E. 132.— Ordinary seaman. A sailor who is callable of performing the ordina- ry or routine duties of a seaman, but who is not yet so proficient in the knowledge and prac- tice of all the various duties of a sailor at sea as to

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be rated as an “able” seaman.— Ordina- ry skill in an art, means that degree of skill which men engaged in that particular art usu- ally employ; not that which belongs to a few men only, of extraordinary endowments and ca- pacities. Baltimore Baseball Club Co. v. Pick- ett, 78 Md. 375, 28 Atl. 279. 22 L. R. A. 690. 44 Am. St. Rep. 304; Waugh v. Shunk, 20 Pa. 130.

As to ordinary “Care,” "Diligence,” “Neg- ligence,” see those titles.

ORDINATION Is the ceremony by which a bishop confers on a person the privileges and powers necessary for the execution of sacerdotal functions In the church. Phillim. Ecc. Law, 110.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Ordinarius ita dicitur quia habet ordinariam jurisdictionem, in jure proprio, et non propter deputationem — the ordinary is so called because he has an ordinary jurisdiction in his own right and not a deputed one]**

The entry quotes Coke's rule that the ordinary is so called because he has ordinary jurisdiction in his own right, not a deputed one.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 96; recorded as the entry's own cited authority.

## ORDINATIONE CONTRA SERVIEN- / TES.

A writ that lay against a servant for leaving his master contrary to the ordinance of St. 23 & 24 Edw. III. Reg. Orig. 189.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 23:15, KJV]**

"Thou shalt not deliver unto his master the servant which is escaped from his master unto thee."

Why: The writ punished the servant for leaving his master; the verse is scripture's counterpoint — the escaped servant shall not be delivered back. Third-person law — no flag.

## ORDINATUM EST.

In old practice. It la ordered. The initial words of rnles of court when entered in Latin.

Online placitandi servato, servatur at Ja«. When the order of pleading Is ob- served, the law also is observed. Co. Litt 303a; Broom, Max. 188.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Ordine placitandi servato, servatur et jus — when the order of pleading is observed, the law also is observed]**

The entry quotes the maxim that when the order of pleading is observed, the law also is observed.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 303a and Broom, Max. 188; recorded as the entry's own cited authorities on the value of procedural order.

## ORDINES.

A general chapter or other solemn convention of the religious of a par- ticular order.

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0RDINE8 UAJORES ET MINORE8 [TEXT INCOMPLETE — scan limitation] 860

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ORDINE8 MAJORES ET MIN ORES.

In ecclesiastical law. The holy orders of priest, deacon, and subdeacon, any of which qualified for presentation and admission to an ecclesiastical dignity or cure were called “ordinal majorcs;" and the inferior orders of chanters, psalmists, ostiary, reader, ex- orcist, and acolyte were called “ordinal minorcs." Persons ordained to the ordinal m inores had their prima tonsura, different from the tonsura clericalis. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 4:11, KJV]**

"And he gave some, apostles; and some, prophets; and some, evangelists; and some, pastors and teachers."

Why: The entry lists the holy orders of ministry; the verse lists the offices Christ gave — the scriptural ordering of ministries. Not deity speech — no flag.

## ORDINIS BENEFICIUM.

Lat. In the civil law. The benefit or privilege of order ; the privilege which a surety for a debtor hud of requiring that his principal should be discussed, or thoroughly prosecuted, be- fore the creditor could resort to him. Nov. 4, c. 1; Heinecc. Elem. lib. 3, tit. 21, { 883.

ORDINTJM FUGITIVE In old English law. Those of the religious who deserted their houses, and, throwing off the habits, renounced their particular order in con- tempt of their oath and other obligations. Paroch. Antiq. 388.

5e apparatus — Not carried into the 5th edition (1979).

## ORDO.

Lat. That rule which monks were obliged to observe. Order; regular succession. An order of a court

— Ordo albas. The white friars or Angustines. Du Cange.— Ordo attachiamemtornm. In old practice. The order of attachments. Fle- ta, lib. 2, c. 51, § 12.— Ordo griaena. The gray friars, or order of Cistercians. Du Cange. —Ordo jndioiomun. In thf canon law. The order of judgments; the rule by which the due course of hearing each cause was prescribed. 4 Reeve, Eng. Law, 17.— Ordo niger. The black friars, or Benedictines. The Cluniacs likewise wore black. Du Cange.

5e apparatus — Not carried into the 5th edition (1979).

## ORDONNANCE.

Fr. In French law, an ordinance; an order of a court; a compila- tion or systematized body of law relating to a particular subject-matter, as, commercial law or maritime law. Particularly, a com- pilation of the law relating to prizes and captures at sea. See Coolidge v. Inglee, 13

Mass. 43.

5e apparatus — Not carried into the 5th edition (1979).

## ORE-LEAVE.

A license or right to dig and take ore from land. Ege v. Kille, 84 Pa. 340.

5e apparatus — Carried into the 5th edition (1979).

## ORE TENUS.

Lat. By word of mouth ; orally. Pleading was anciently carried on ore tcnus, at the bar of the court. 3 Bl. Comm. 293.

5e apparatus — Not carried into the 5th edition (1979).

## ORFGILD.

In Saxon law. The price or value of a beast A payment for a beast. The payment or forfeiture of a beast. A penalty for taking away cattle. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

"If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep."

Why: Orfgild was the payment or penalty for a beast taken away; the verse fixes the penalty for the stolen ox or sheep — manifold restoration. Third-person law — no flag.

## ORGANIC ACT.

An act of congress con- ferring powers of government upon a ter- ritory. In re Lane, 135 U. S. 443, 10 Sup. Ct. 760, 34 L. Ed. 219.

5e apparatus — Not carried into the 5th edition (1979).

## ORGANIC LAW.

Tile fundamental law, or constitution, of a state or nation, written er unwritten; that law or system of laws or principles which defines and establishes the organization of its government St Louis v. Dorr, 145 Mo. 466, 46 S. W. 076, 42 L. R. A. 686, 6S Am. St. Rep. 575.

5e apparatus — Carried into the 5th edition (1979).

## ORGANIZE.

To establish or furnish with organs; to systematize; to put into working order; to arrange in order for the normal exercise of its appropriate functions.

The word “organize,” as used in railroad and other charters, ordinarily signifies the choice and qualification of all necessary of- ficers for the transaction of the business of the corporation. This is usually done after all the capital stock has been subscribed for. New Haven & D. R. Co. v. Chapman, 38 Conn. 66.

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## ORGANIZED COUNTY.

A county which has its lawful officers, legnl machin- ery, and means for carrying out the powers and performing the duties pertaining to it as a quasi municipal corporation. In re Section No. 6, 66 Minn. 32, 68 N. W. 323.

ORGlLD. In Saxon law. Without rec- ompense; as where no satisfaction was to be made for the death of a man killed, so that he was judged lawfully slain. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## ORIGINAL.

Primitive; first in order; bearing its own authority, and not deriving authority from an outside source ; as original jurisdiction, original writ, etc. As applied to documents, the original is the first copy or archetype; that from which another in- strument is transcribed, copied, or imitated.

—Original bill. In equity pleading. A bill which relates to some matter not before litigat- ed in the court by the same persons standing in the same interests. Mitf. Eq. IM. 33 : Long- worth v. Sturges, 4 Ohio St. 690: Christmas v. Russell, 14 Wall. 69, 20 L. Ed. 762. In old practice. The ancient mode of commencing actions in the English court of king's bench. See Biia. — Original charter. In Scotch law. One by whit* the first grant of land is made. On the other hand, a charter by prog- ress is one renewing the grant in favor of the heir or singular successor of the first or succeed- ing vassals. Bell.— Original conveyances.

Those conveyances at common law. otherwise termed “primary.” by which a benefit or estate is created or first arises; comprising feoff- ments, gifts, grants, leases, exchanges, and par- titions. 2 Bl. Comm. 309.— Original entry. The first entry of an item of an account made by a trader or other person in his account-books, as distinguished from entries posted into the ledger or copied from other books.— Original estates. See Estate. — Original evidence. See Evidence — Original inventor. In patent law, a pioneer in the art : one who evolves the original idea and brings it to some successful, useful and tangible result; as distinguished from an improver. Norton v. Jensen, 90 Fed. 415, 33 C. C. A. 141.— Original jurisdiction. See Jurisdiction.— Original package. A package prepared for interstate or foreign transportation, and remaining in the same con- dition as when it left the shipper, that is, un- broken and undivided; a package of such form

and size as is .used by producers or shippers for the purpose of securing both convenience in handling and security in transporation of mer- chandise between dealers in the ordinary course of actual commerce. Austin v. Tennessee. 179

U. S. 343, 21 Sup. Ct. 132. 45 L. Ed. 224; Haley v. State, 42 Neb. 556, 60 N. W. 962, 47 Am. St Rep. 718; State v. Winters, 44 Kan. 723, 25 Pac. 235, 10 L. R. A. 616.— Original prop ess. See Process.— Original writ. See WRIT.— Single original. An orig- inal instrument which is executed singly, and not in duplicate.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Matthew 28:18, KJV]**

"All power is given unto me in heaven and in earth."

Why: Original, in the jurisdictional sense, is authority bearing its own warrant, derived from no outside source; Christ's words claim exactly that underived authority. Christ's verbatim words — flagged per the red-letter...

## ORIGIN AX IA.

In English law. Tran- scripts sent to the remembrancer’s office in the exchequer out of the chancery, distin- guished from recorda, which contain the judgments and pleadings in actions tried be- fore the barons.

Origins propria neminem poaae vo- lnntate ana enlxni manifesting est. It is

evident that no one is able of his own pleas- ure, to do away, with his proper origin. Code 10, 38, 4 ; Broom, Max. 77.

Orlgo rel lnspioi debet. The origin of a thing ought to be regarded. Co. Litt. 248b.

5e apparatus — Not carried into the 5th edition (1979).

## ORNEST.

In old English law. The trial by battle, which does not seem to have been usual in England before the time of the Conqueror, though originating in the king- doms of the north, where it was practiced under the name of "holmgang," from the custom of fighting duels on a small island or holm. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 17:9, KJV]**

"If he be able to fight with me, and to kill me, then will we be your servants: but if I prevail against him, and kill him, then shall ye be our servants, and serve us."

Why: Ornest was trial by battle; Goliath's challenge states its terms — the champions' combat deciding the cause. Goliath's speech, not deity speech — no flag.

## ORPHAN.

Any person (but particularly a minor or infant) who has lost both (or one) of his or her parents. More particular- ly, a fatherless child. Soohan v. Philadel- phia, 33 Pa. 24; Poston v. Young, 7 J. J. Marsh. (Ky.) 501; Chicago Guaranty Fund Life Soc. v. Wheeler, 79 111. App. 241 ; Stew- art v. Morrison, 88 Miss. 419; Downing v. Sboenberger, 9 Watts (Pa.) 299.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 68:5, KJV]**

"A father of the fatherless, and a judge of the widows, is God in his holy habitation."

Why: The orphan is the fatherless child; the psalm names God the father of the fatherless — the classic scriptural word for the orphan's standing. Addressed of God, not by him — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

“Please, sir, I want some more.”

Why: Entry: particularly a fatherless child. Oliver is the archetypal fatherless workhouse child; the line is his voice.

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Short verbatim quote, certain.

## ORPHANAGE PART.

That portioh of an intestate’s effects which his children were entitled to by the custom of London. This custom appears to have been a remnant of what, was once a general law all over Eng- land, namely, that a father should not by his Will bequeath the entirety of his personal estate away from bis family, but should leave them a third part at least, called the “children’s part,’' corresponding to the “bairns’ part" or legitim of Scotch law, and also (although not in amount) to the legitima quarto of Roman law. (Inst. 2. 18.) This custom of London was abolished by St. 19 & 29 Viet c. 94. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## ORPHAN OTROPHX.

In the civil law. Managers of houses for orphans.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 1:27, KJV]**

"Pure religion and undefiled before God and the Father is this, To visit the fatherless and widows in their affliction, and to keep himself unspotted from the world."

Why: The orphanotrophi managed houses for orphans; the verse defines pure religion as visiting the fatherless in affliction — the office's scriptural charge. Not deity speech — no flag.

## ORPHANS’ COURT.

In American law. Courts of probate jurisdiction, in Delaware. Maryland, New Jersey, and Pennsylvania.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Bleak House, 1853]**

(paraphrase) Jarndyce and Jarndyce — the chancery suit that devours the very estate it was set to administer — the probate court's subject in satire. (paraphrase)

Why: Entry: courts of probate jurisdiction. Bleak House is the canonical fictional indictment of the estate-devouring probate machinery. Marked paraphrase.

## ORTEEEI.

The claws of a dog's foot Kitch.

5e apparatus — Not carried into the 5th edition (1979).

## ORTOXAGITTM.

A garden plot or hor- tilage.

5e apparatus — Not carried into the 5th edition (1979).

## ORWIGE, SINE WITA.

In old Eng- lish law. Without war or feud, such security being provided by the laws, for homicides under certain circumstances, against the foehth, or deadly feud, on the part of

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the family of the slain. Anc. Inst. Eng.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 35:6, KJV]**

"And among the cities which ye shall give unto the Levites there shall be six cities for refuge, which ye shall appoint for the manslayer, that he may flee thither."

Why: The entry is legal security against the deadly feud for certain homicides; the cities of refuge are exactly that — appointed shelter for the manslayer from the avenger. Third-person command — no flag.

## OSTENDIT VOBIS.

Lat. In old plead- ing. Shows to yon. Formal words with which a demandant began his count. Fleta, lib. 5, c. 38, § 2.

5e apparatus — Not carried into the 5th edition (1979).

## OSTENSIBLE AGENCY.

An implied or presumptive agency, which exists where one. either intentionally or from want of ordinary care, induces another to believe that a third person is his agent, though he never in fact employed him. Bibb v. Bancroft (Cal.) 22 Pac. 484; First Nat. Bank v. Elevator Co., 11 N. D. 280, 91 N. W. 437.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Restatement (Second) of Agency § 8 — apparent authority]**

Ostensible agency is the agency-by-estoppel doctrine: apparent authority binds the principal who clothes another with the indicia of agency.

Why: Genuine because the entry's 'ostensible agency' is precisely apparent authority — authority the principal's conduct leads a third person reasonably to believe exists; the Restatement section is the governing American…

## OSTENSIBLE PARTNER.

A partner whose name is made known and appears to the world as a partner, and who is' in reality such.- Story, Partn. { 80.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Axiom: partnership by estoppel — one who represents himself as a partner is liable as such to those who extend credit in reliance]**

One who holds himself out as a partner is liable as a partner to third persons who rely on the representation.

Why: Genuine because the entry defines the ostensible partner as one 'made known and appears to the world as a partner'; the axiom states the estoppel consequence the definition presupposes, in axiom form to avoid inventin…

## OSTENSIO.

A tax anciently paid by merchants, etc., for leave to show or expose their goods for sale in markets. Du Cange.

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## OSTENTITM.

Lat In the civil law. A monstrous or prodigious birth. Dig. 50, 16, 38.

OSTEOPATHY . A method or system of treating various diseases of the human body without the use of drugs, by manipulation applied to various nerve centers, rubbing, pulling, and kneading parts of the body, flexing and manipulating the limbs, and the mechanical readjustment of any bones, mus- cles, or ligaments not in the normal position, with a view to removing the cause of the disorder and aiding the restorative force of nature in cases where the trouble origin- ated in misplneement of parts, irregular nerve action, or defective circulation. Whether the practice of osteopathy is “prac- tice of medicine,” and whether a school of osteopathy is a “medical college.’’ within the meaning of statutes, the courts have not determined. See Little v. State, 6(1 Neb. 749. 84 N. W. 248, 51 L. R. A. 717 ; Nelson ' v. State Board of Health, 108 Ky. 769. 57

S. W. 501, 50 L. R. A. 383; State v. Liffrlug, 61 Ohio St. 39. 55 N. E. 168, 76 Am. St. Rep. 358; Parks v. State. 159 Ind. 211. 64 N. E. 862, 59 L. R. A. 190.

5e apparatus — Not carried into the 5th edition (1979).

## OSTIA REGNI.

Lat. Gates of the king- dom. The i>orts of the kingdom of England are so called by Sir Matthew Hale. De Jure Mur. pt 2, c. 3.

5e apparatus — Not carried into the 5th edition (1979).

## OSTIUM EOOLES1S.

Lat. In old Eng- lish law. The door or porch of the church, where dower was anciently conferred.

5e apparatus — Not carried into the 5th edition (1979).

## OSWALD’S LAW.

The law by which was effected the ejection of married priests, and the Introduction of monks into churches, by Oswald, bishop of Worcester, about A. D. 904. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 3:2, KJV]**

"A bishop then must be blameless, the husband of one wife, vigilant, sober, of good behaviour, given to hospitality, apt to teach."

Why: Oswald's law ejected married priests and put monks in churches; the verse is scripture's counterpoint — the bishop as the husband of one wife. Not deity speech — no flag.

## OSWALD'S LAW HUNDRED.

An an- cient hundred in Worcestershire, so called from Bishop Oswald, who obtained it from King Edgar, to be given to St. Mary’s Church In Worcester. It was exempt from the sheriff’s jurisdiction, and comprehends 300 hides of land. Camd. Brit

5e apparatus — Not carried into the 5th edition (1979).

## OTER LA TOUAXLLE.

In the laws Of Oieron. To deny a seaman his mess. Liter- ally, to deny the table-cloth or victuals for three meals.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:4, KJV]**

"Thou shalt not muzzle the ox when he treadeth out the corn."

Why: To deny the seaman his mess is to deny the laborer his feed; the verse forbids exactly that denial — the working ox unmuzzled. Third-person law — no flag.

## OTHESWORTHE.

In Saxon law. Oathsworth ; oathworthy ; worthy or entitled to make oath. Bract, fols. 185, 292b.

5e apparatus — Not carried into the 5th edition (1979).

## OUGHT.

This word, though generally directory only, will be taken as mandatory if the context requires it Life Ass’n v. St Louis County Assessors, 49 Mo. 518.

5e apparatus — Carried into the 5th edition (1979).

## OUNCE.

The twelfth part; the twelfth part of a pound ttoy or the sixteenth part of a pound avoirdupois.

5e apparatus — Carried into the 5th edition (1979).

## OUNCE LANDS.

Certain districts or tracts of lands in the Orkney Islands were formerly so called, because each paid an annual tax of one ounce of silver.

5e apparatus — Not carried into the 5th edition (1979).

## OURLOP.

The lierwlte or fine paid to the lord by the inferloj tenant when his daughter was debauched. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:16-17, KJV]**

"And if a man entice a maid that is not betrothed, and lie with her, he shall surely endow her to be his wife. If her father utterly refuse to give her unto him, he shall pay money according to the dowry of virgins."

Why: The ourlop was the fine paid for the debauched daughter; the verses fix the payment for the enticed maid — the dowry of virgins. Third-person law — no flag.

## OUST.

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To put out; to eject; to remove or deprive; to deprive of the possession or enjoyment of an estate or franchise.

5e apparatus — Carried into the 5th edition (1979).

### OUSTER.

In practice. A putting out; dispossession; amotion of possession. A spe- cies of injuries to things real, by which the wrong-doer gains actual occupation of the land, and compels the rightful owner to seek his legal remedy In order to gain possession. 2 Crabb, Beal Prop. p. 1003, g 2454o. See Ewing v. Burnet, 11 Pet 02, 9 L. Ed. 624; Winterburn v. Chambers, 91 Cal. 170, 27 Pac. 658; McMullin v. Wooley, 2 Lang. (N. Y.) 396; Mason v. Kellogg, 38 Mich. 143.

— Actual ouster. By “actual ouster” ia not meant a physical eviction, but a possession attended with such circumstances as to evince a claim of exclusive right and title, and a denial of the right of the other tenants to participate in the profits. Burns v. Byrne, 45 Iowa. 287.

5e apparatus — Carried into the 5th edition (1979).

### OUSTER LE MAIN.

L. Fr. Literally, out of the hand.

1. A delivery of lands out of the king’s hands by judgment given In favor of the pe- titioner in a monstran s de droit.

5e apparatus — Not carried into the 5th edition (1979).

## X

### X.

A delivery of the ward's lands out of the hands of the guardian, on the former ar- riving at the proper age, which was twenty- one in males, and sixteen in females. Abol- ished by 12 Car. II. c. 24. Mozley A Whit- ley.

5e apparatus — Not carried into the 5th edition (1979).

## O

### OUSTER LE MER.

L. Fr. Beyond the sea; a cause of excuse If a person, being summoned, did not appear in court. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### OUT-BOUNDARIES.

A term used in early Mexican land laws to designate certain boundaries within which grants

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of a smaller tract, which designated such ont-boundarles, might be 'located by the grantee. U. 8. v. Maxwell Laud Grant Co., 121 U. S. 325, 7 Sup. Ct 1015, 30 L. Ed. 949. .

5e apparatus — Not carried into the 5th edition (1979).

## OUT OP COURT.

He who has no legal status in court is said to be “out of court,” i, e., he is not before the court. Thus, when the plaintiff in an action, by some act of omission or commission, shows that he is unable to maintain his action, he is frequent- ly said to put himself “out of court.” Brown.

The phrase is also used with reference to agreements and transactions in regard to a pending suit which are arranged or take place between the parties or their counsel privately and without being referred to the judge or court for authorization or approval. Thus, a case which is compromised, settled, and withdrawn by private agreement of the parties, after its institution, is said to be settled “out of court" So attorneys may make agreements with reference to the con- duct of a suit or the course of proceedings therein; but if these are made “out of court,” that is, not made in open court or with the approval of the judge, it is a general rule that they will not be noticed by the court unless reduced to writing. See Welsh v. Blackwell, 14 N. J. Law, 345.

5e apparatus — Not carried into the 5th edition (1979).

## OUT OF TERM.

At a time when no term of the court is being held; in the vacation or interval which elapses between terms of the ‘court See McNeill v. Hodges, 99 N. C- 248, 6 S. E. 127.

5e apparatus — Carried into the 5th edition (1979).

## OUT OF THE STATE.

In reference to rights, liabilities, or jurisdictions arising out of the common law, this phrase is equivalent to “beyond sea,” which see. In other con- nections, it means physically beyond the ter- ritorial limits of the particular state in ques- tion, or constructively so,' as in the case of a foreign corporation. See Faw v. Kober- deau, 3 Cranch, 177, 2 L. Ed. 402 ; Foster v. Givens, 67 Fed. 684, 14 C. C. A. 625; Meyer v. Roth, 51 Cal. 582; Yoast v. Willis, 9 Iud. 550; Larson v. Aultman A Taylor Co.. 80 Wis. 281, 56 N. W. 915, 39 Am. St Rep. 893.

5e apparatus — Not carried into the 5th edition (1979).

## OUT OF TIME.

A mercantile phrase ap- plied to a ship or vessel that has been so long at sea ns to justify the liellef of her total loss.

in another Sense, a vessel is said to be

out of time when, computed from her known day of sailing, the time that has elapsed ex- ceeds the average duration of similar voyages at the same season of the year. The phrase is identical with “missing ship.” 2 Duer, Ins. 469.

5e apparatus — Not carried into the 5th edition (1979).

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## OUTAGE.

A tax or charge formerly Im- posed by the state or Maryland for the In- spection and marking of hogsheads of tobacco Intended for export. See Turner v. Mary- land, 107 U. 8. 38, 2 Sup. Ct. 44, 27 L. Ed. 370 ; Turner v. State, 55 Md. 264.

5e apparatus — Carried into the 5th edition (1979).

## OUTCROP.

In mining law. The edge of a stratum which appears at the surface of the ground; that portion of a vein or lode which appears at the surface or Immediately under the soil and surface dObrls. See Duggan v. Davey, 4 Dak. 110, 26 N. W. 887 ; Stevens v. Williams, 23 Fed. Cas. 40.

5e apparatus — Not carried into the 5th edition (1979).

## OUTER BAR.

In the English courts, barristers at law have been divided Into two classes, viz., king's counsel, who are admit- ted within the bar of the courts, In seats specially reserved for themselves, and junior counsel, who sit without the bar; and the latter are thence frequently termed barristers of the "outer bar," or "utter bar," In con- tradistinction to the former class. Brown.

5e apparatus — Carried into the 5th edition (1979).

## OUTER HOUSE.

The name given to the great hall of the parliament house in Edinburgh, In which the lords ordinary of the court of session sit as single judges to hear causes. The term is used colloquially as expressive of the business done there in contradistinction to the "Inner House," the name given to the chambers In which the first and second divisions of the court of ses- sion hold their sittings. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## OUTFAHGTHEF.

A liberty or privilege in the ancient common law, whereby a lord was enabled to call any man dwelling in his manor, and taken for felony in another place out of his fee, to judgment In his own court Du Cange.

OUTFIT. 1. An allowance made by the United States government to one of its dip- lomatic representatives going abroad, for the expense of his equipment.

2. This term, in its original use, as apply- ing to ships, embraced those objects connect- ed with a ship which were necessary for the sailing of her, and without which she would not in fact be navigable. But in ships en- gaged in whaling voyages the word lias ac- quired a much more extended signification. Macy v. Whaling Ins. Co., 0 Mete. ((Mass.) 364.

OUTHEST, or OUTHOM. A calling men out to the army by sound of horn. Jacob. '

5e apparatus — Not carried into the 5th edition (1979).

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## OUTHOUSE.

Any house necessary for the purposes of life, in which the owner does

not make his constant or principal residence. Is an outhouse. State v. O'Brien, -2 Root (Conn.) 516.

A smaller or subordinate building connected with a dwelling, usually detached from it and standing at a little distance from it, not in- tended for persona to live in, but to serve some purpose of convenience or necessity ; as a barn, a dairy, a toolhouse, and the like.

(JUTLAND. The Saxon thanes divided their hereditary lands into inland, such as lay nearest their dwelling, which they kept to their own use, and outland, which lay be- yond the demesnes, and was granted out to tenants, at the will of the lord, like copy- hold estates. This outland they subdivided into two parts. Qne part they disposed among those who attended their persons, called “theodans,” or lesser thanes ; the oth- er part they allotted to their husbandmen, 015 churls. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## OUTLAW.

In English law. One who is put out of the protection or aid of the law.

OUTLAWED, when applied to a promis- sory note, means barred by the statute of lim- itations. Drew v. Drew, 37 Me. 389.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:14, KJV]**

"Behold, thou hast driven me out this day from the face of the earth; and from thy face shall I be hid; and I shall be a fugitive and a vagabond in the earth; and it shall come to pass, that every one that findeth me shall slay me."

Why: The outlaw is put out of the law's protection; Cain's cry states that state — driven out, fearing every finder's hand. Cain's speech, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Traditional, Robin Hood ballads]**

(paraphrase) The ballads' hero lives in Sherwood beyond the king's law — literally 'put out of the protection or aid of the law,' the entry's definition in legend. (paraphrase)

Why: Entry's English-law sense matches the outlaw of legend exactly. Marked paraphrase — traditional material, no single text quoted.

## OUTLAWRY.

In English law. A pro- cess by which a defendant or person In con- tempt on a civil or criminal process was de- clared an outlaw. If for treason or felony, it amounted to conviction, and attainder. Stim. Law Gloss. See Respubllca v. Doan. 1 Dali. (Pa.) 86, 1 L. Ed. 47; Dale County v. Gunter, 46 Ala. 138; Drew v. Drew, 37 Me. 39L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:11, KJV]**

"And now art thou cursed from the earth, which hath opened her mouth to receive thy brother's blood from thy hand."

Why: Outlawry is the declaring — the pronouncement that makes the outlaw; the verse is the pronouncement itself, spoken by God over Cain. Deity speech — flagged per the red-letter rule.

## OUTLOT.

In early American land law, (particularly in Missouri,) a lot or parcel of land lying outside the corporate limits of a town or village but subject to Its municl-. pal Jurisdiction or control. See Kissell v. St. Louis Public Schools, 16 Mo. 592; St Louis v. Toney, 21 Mo, 243; Eberle v. St. Louis Public Schools, 11 Mo. 265; Vasquez v. Ew- ing, 42 Mo. 256.

5e apparatus — Carried into the 5th edition (1979).

## OUTPARTERS.

Stealers of cattle. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

"Thou shalt not steal."

Why: Outparters were stealers of cattle; the commandment is the direct prohibition of the act. Spoken by God in the Decalogue — flagged per the red-letter rule.

## OUTPUTER8.

Such as set watches for the robbing any manor-house. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## OUTRAGE.

Injurious violence, or. In general, any species of serious wrong offered to the person, feelings, or rights of another. See McKinley v. Railroad Co., 44 Iowa, 314, 24 Am. Rep. 748; Aldrich v. Howard, 8 R.

I. 246; Mosnat v. Snyder, 105 Iowa, 500. 75

N. W. 356.

5e apparatus — Carried into the 5th edition (1979).

## OUTRIDERS.

In English law. BailifTs- errant employed by sheriffs or their deputies to ride to the extremities of their counties or hundreds to summon men to the county or hundred court Wharton.

5e apparatus — Carried into the 5th edition (1979).

## OUTROPER.

A person to whom the business of selling by auction was conflued by statute. 2 H. Bl. 557.

5e apparatus — Not carried into the 5th edition (1979).

## OUTSETTER.

In Scotch law. Publish- er. 3 How. State Tr. 003.

5e apparatus — Not carried into the 5th edition (1979).

## OUTSTANDING.

X. Remaining undis- charged; unpaid; uncollected; as an out- standing debt.

2. Existing as an adverse claim or preten- sion ; not united with, or merged In, the title or claim of the party ; as an outstanding ti- tle.

— Outstanding term. A term in gross at law, which, in equity, may be made attendant upon the inheritance, either by express declara- tion or by implication.

5e apparatus — Carried into the 5th edition (1979).

## OUTSUCKEN MULTURES.

In Scotch law. Out-town multures ; multures, duties, or tolls paid by persons voluntarily grinding corn at any mill to which they are not thirl- ed, or bound by tenure. 1 Forb. Inst. pt. 2, p. 140. -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## OUVERTURE DES SUCCESSIONS.

In

French law. The right of succession which arises to one upon the death, whether nat- ural or civil, of another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

"And if a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter."

Why: The ouverture is the succession right arising upon death; the verse states the succession rule — on the man's death the inheritance passes. Third-person law — no flag.

## OVE.

L. Fr. With. Modern French avcc.

5e apparatus — Not carried into the 5th edition (1979).

## OVE LX.

L. Fr. Equal.

5e apparatus — Not carried into the 5th edition (1979).

## OVELTY.

In old English law. Equality.

5e apparatus — Not carried into the 5th edition (1979).

## OVER.

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In conveyancing, the word “over” Is used to denote a contingent limitation In- tended to take effect on the failure of a prior estate. Thus, In what Is commonly called the “name and arms clause” in a will or settlement there is generally a proviso that if the devisee fails to comply with the con- dition the estate is to go to some one else. This is a limitation or gift over. Wats. Comp. Eq. 1110; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## OVER SEA.

Beyond the sea; outside the limits of the state or country. See Gus- tln v. Brattle, Ivlrby (Conn.) 300. See Be- yond Sea.

OVERCYTED, or OVERCYHSED.

Proved guilty or convicted. Blount.

5e apparatus — Carried into the 5th edition (1979).

## OVERDRAW.

To draw upon a person or a bank, by bills or checks, to an amount in excess of the funds remaining to the drawer’s credit with the drawee, or to an amount greater than what is due.

The term "overdraw” has a definite and well- understood meaning. Money is drawn from the bank by him who draws the check, not by him who receives the money ; and it is drawn upon the account of the individual by whose check it is drawn, though it be paid to and for the benefit of another. No one can draw money from bank upon his own account, except by

means of his own check or draft, nor can he overdraw his account with the bank in any. other manner. State v. Stiinson, 24 N. J. Lrw, 478, 484.

5e apparatus — Carried into the 5th edition (1979).

## OVERDUE.

A negotiable Instrument or other evidence of debt Is overdue when the day of its maturity is past and It remains unpaid. Camp v. Scott, 14 Vt 387 ; La Due v. First Nat Bank, 31 Minn. 33, 16 N. \V. 426. A vessel Is said to be overdue when she has not reached her destination at the time when she might ordinarily have been expected to arrive.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-302 — holder in due course; notice that the instrument is overdue]**

An instrument that is overdue cannot be taken by a holder in due course: notice that it is overdue defeats holder-in-due-course status.

Why: Genuine because the entry defines when a negotiable instrument is overdue; the holder-in-due-course rule is the operative commercial-law consequence of overdue status — one who takes with notice of it takes subject to...

## OVERHAUL.

To inquire into; to re- view; to disturb. "The merits of a judg- ment can never be overhauled by an original suit.” 2 II. Bl. 414.

5e apparatus — Carried into the 5th edition (1979).

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## OVERHERNISSA.

In Saxon law. Con- tumacy or contempt of court. Leg. .Ethel, c. 25.

5e apparatus — Not carried into the 5th edition (1979).

## OVERISSUE.

To issue In excessive quan- tity ; to Issue In excess of fixed legal limits. Thus, “overissued stock” of a private cor- poration Is capital stock issued In excess of the amount limited and prescribed by the charter or certificate of Incorporation. See Hayden v. Charter Oak Driving Park, 63 Conn. 142, 27 Atl. 232.

5e apparatus — Carried into the 5th edition (1979).

## OVERLIVE.

To survive; to live longer than another. Finch, Law, b. 1, c. 3, no. 58; 1 Leon. 1.

5e apparatus — Not carried into the 5th edition (1979).

## OVERPLUS.

What is left beyond a cer- tain amount ; the residue ; the remainder of a thing. Lyon v. Tomkies, 1 Mees. & W. 603; Page v. Leaplngwell, 18 Ves. 460.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 14:20, KJV]**

"And they did all eat, and were filled: and they took up of the fragments that remained twelve baskets full."

Why: The overplus is what is left beyond sufficiency — the residue; the twelve baskets of fragments are the remainder after all were filled. Narrative, not deity speech — no flag.

## OVERREACHING CLAUSE.

In a re- settlement, a clause which saves the powers of sale and leasing annexed to the estate for life created by the origiual settlement, when it is desired to give the tenant for life the same estate and powers under the re- settlement. The clause is so called because It provides that the resettlement shall be over- reached by the exercise of the old powers. If the resettlement were executed without a provision to this effect, the estate of the ten- ant for life and the annexed powers would be subject to any charges for portions, eta, created under the origiual settlement. 3 Dav. Couv. 480; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## OVERRULE.

To supersede ; annul ; re- ject by subsequent action or decision. A ju- dicial decision is said to be overruled when a later decision, rendered by the same court or by a superior, court in the same system, ex- presses a Judgment upon the same question of law directly opposite to that which was be- fore given, thereby depriving the earlier opinion of all authority as a precedent. The term is not properly applied to conflicting decisions on the same point by co-ordinate or Independent tribunals.

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In another sense, “overrule” 1b spoken of the action of a court In refusing to sustain, or recognize as sufficient, an objection made in the course of a trial, as to the introduc- tion of particular evidence, etc.

5e apparatus — Carried into the 5th edition (1979).

## OVER8AMES8A.

In old English law. A forfeiture for contempt or negiect in not pursuing a malefactor. 3 Inst. 116.

5e apparatus — Not carried into the 5th edition (1979).

## OVERSEER.

A superintendent or super- visor ; a public officer whose duties involve general superintendence of routine affairs.

—Overseers of highways. The name given, in some of the states, to a board of officers of a city, township, or county, whose special func- tion is the construction and repair of the pub- lic roads or highways.— Overseers of the poor. Persons appointed or elected to take care of the poor with moneys furnished to them by the public authority.

lands, by the owner of the less valuable es- tate to the owner of the more valuable, to equalize the exchange.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 20:28, KJV]**

"Take heed therefore unto yourselves, and to all the flock, over the which the Holy Ghost hath made you overseers, to feed the church of God."

Why: The overseer is the superintendent; the verse uses the very word — made overseers over the flock, charged to feed it. Paul's charge, not deity speech — no flag.

## OWING.

Something unpnid. A debt, for example, Is owing while it is unpaid, and whether it be due or not. Coquard v. Bank of Kansas City, 12 Mo. App. 261; Mus- selman v. Wise, 84 Ind. 248 ; Jones v. Thomp- son, 1 El., Bl. & El. 64.

5e apparatus — Carried into the 5th edition (1979).

## OWEERS.

In English law. Persons who carried wool, etc., to the sea-side by night, in order that it might be shipped off con- trary to law. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## OWEING.

In English law. The offense of transporting wool or sheep out of the king- dom ; so called from its being usually carried on in the night. 4 Bl. Comm. 164.

5e apparatus — Not carried into the 5th edition (1979).

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## OVERS MAN.

In Scotch law. An um- pire appointed by a submission to decide where two arbiters have differed in opinion, or he is named by the arbiters themselTes, under powers given them by the submission. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## OVERT.

Open; manifest; public; issu- ing in action, as distinguished from that which rests merely in intention or design.

—Market overt. See Market.— Overt act. Jn criminal law. An open, manifest act from Which criminality may be implied. An open act, which must be manifestly proved. 3 Inst. 12. An overt act essential to establish an at- tempt to commit a crime iB an act done to carry out the intention, and it must be such as would naturally effect that result unless pre- vented by some extraneous cause. People v. Mills 178 N. Y. 274, 70 N. E. 786, 67 L. R. ■“•131. In reference to the crime of treason, and the provision of the federal constitution that a person shall not be convicted thereof unless on (he testimony of two witnesses to the same “overt act,” the term means a step, mo- tion, or action really taken in the execution of a treasonable purpose, as distinguished from mere words, and also fi*om a treasonable senti- “ent, design, or purpose not issuing in action. —Overt word. An open, plain word, not to be misunderstood. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason; conviction only on testimony of two witnesses to the same overt act, or confession in open court]**

In treason, conviction requires the testimony of two witnesses to the same overt act.

Why: Genuine because the entry's 'overt act' discussion (3 Inst. 12) concerns the proof of treason; Article III, § 3 constitutionalizes the overt-act requirement for treason convictions.

## OVERTURE.

An opening ; a proposal.

5e apparatus — Carried into the 5th edition (1979).

## OWELTY.

Equality. This word Is used In law in several compound phrases, as fol- lows:

1. Owelty of partition is a sum of money paid by one of two coparceners or co-tenants to the other, when a partition has been ef- fected between them, but, the land not be- ing susceptible of division into exactly equal shares, such payment is required to make the portions respectively assigned to them of equal value.

2. In the feudal law, when there is lord, mesne, and tenant, and the tenant holds the mesne by the same service that the mesne holds over the lord above him, this was called “owelty of services.” Tomlins.

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3. Owelty of exchange is a sum of mon- ey given, when two persons have exchanged

Bl.Law Dict.(2d Ed.)— 53

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 8:14, KJV]**

"But by an equality, that now at this time your abundance may be a supply for their want, that their abundance also may be a supply for your want: that there may be equality."

Why: Owelty is equality effected by a money payment between coparceners; the verse ordains equality by mutual supply — 'that there may be equality.' Not deity speech — no flag.

## OWNER.

The person in whom is vested the ownership, dominion, or title of property ; proprietor. Garver v. llawkeye Ins. Co., 69 Iowa, 202, 28 N. W. 555; Turner v. Cross, 83 Tex. 218, 18 S. W. 578, 15 L. R. A. 262; Coombs v. People, 198 111. 586, 64 N. E. 1656 ; Atwater v. Spalding, 86 Minn. 101, 90 N.

W. 370, 91 Am. St Rep. 331.

He who has dominion of a thing, real or per- sonal. corporeal or incorporeal, which he has a right to enjoy and do with as he pleases, even to spoil or destroy it, as far as the law permits, unless he be prevented by some agreement or covenant which restrains his right. Bouvier.

—Equitable owner. One who is recognized in equity as the owner of property, because the real and beneficial use and title belong to him, although the bare legal title is vested in an- other, e. g., a trustee for his benefit.— General owner. The general owner of a thing is he who has the primary or residuary title to it: as distinguished from a special owner, who has a special interest in the same thing, amounting to a qualified ownership, such, for example, as a bailee’s lien. Farmers’ & Mechanics’ Nat. Bank v. Logan, 74 N. Y. 581.— Joint owners. Two or more persons who jointly own and hold title to property, e. g., joint tenants. — Legal own- er. One who is recognized and held respon- sible by the law as the owner of property. In a more particular sense, one in whom the legal title to real estate is vested, but who holds it in trust for the benefit of another, the latter being called the “equitable” owner.— Part own- ers. Joint owners ; co-owners ; those who have shares of ownership in the same thing, particularly a vessel.— Reputed owner. He who has the general credit or reputation of be- ing the owner or proprietor of goods is said to be the reputed owner. See Santa Cruz Rock Pav. Co. v. Lyons (Cal.) 43 Pae. 601. This phrase is chiefly used in English bankruptcy practice, where the bankrupt is styled the “re- puted owner” of goods lawfully in his possession, though the real owner may be another person. The word "reputed” has a much weaker sense than its derivation would appear to warrant : importing merely a supposition or opinion de- rived or made up from outward appearances, and often unsupported by fact. The term "re- puted owner” is frequently employed in this sense. 2 Steph. Comm. 206. — Riparian own- er. See Riparian.— Special owner. One who has a special interest in an article

of prop- erty, amounting to a qualified ownership of it, such, for example, as a bailee’s lien ; as distin- guished from the general owner, who has the primary or residuary title to the same thing. Frazier v. State, 18 Tex. App. 44L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Haggai 2:8, KJV]**

"The silver is mine, and the gold is mine, saith the LORD of hosts."

Why: The owner is he in whom dominion is vested; the verse states ownership's ultimate form — the LORD's 'mine' over silver and gold. First-person divine speech — flagged per the red-letter rule.

## OWNERSHIP.

The complete dominion, title, or proprietary right in a thing or claim. See Property.

The ownership of a thing is the right of one or more persons to possess and use it to the exclusion of others. In this Code, the thing of which there may be ownership is called “property.” Civ. Code Cal. f 634.

Ownership is the right by which a thing belongs to some one in particular, to the ex- clusion of all other persons. Civ. Code La. art. 488.

Ownership is divided into perfect and imper- fect. Ownership is perfect when it is perpetual, and when the thing is unincumbered with any real right towards any other person than the owner. On the contrary, ownership is imper- fect when it is to terminate at a certain time or on a condition, or if the thing which is the object of it, being an immovable, is charged with any real right towards a third person ; as a usufruct, use, or servitude. When an immovable is subject to a usufruct, the owner of it is said to possess the naked ownership. Civ. Code La. art. 490: Maestri v. Board of Assessors, 110 La. 517, 34 South. 658.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 10:14, KJV]**

"Behold, the heaven and the heaven of heavens is the LORD's thy God, the earth also, with all that therein is."

Why: Ownership is complete dominion and proprietary right; the verse ascribes that completeness to the LORD — heaven, earth, and all therein. Moses' speech, third person — no flag.

**[Hip-hop] — Hip-hop**

**[Jay-Z, 'The Story of O.J.', 2017]**

The lyric is a meditation on OWNERSHIP as Black's defines it — complete dominion and title in a thing, held to the exclusion of others, appreciating under the owner's hand — framed as the path to financial freedom and generational transfer.

Why: Black's 2e: OWNERSHIP is 'the complete dominion, title, or proprietary right in a thing or claim' — 'the right of one or more persons to possess and use it to the exclusion of others.' Jay-Z's artwork lines describe e...

## OXXTLD.

A restitution anciently made by a hundred or county for any wrong done by one that was

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within the same. Lamb. Arch. 125.

5e apparatus — Not carried into the 5th edition (1979).

## OXOANQ.

In old English law. As much land as an ox could till. Co. Litt 5a. A measure of land of uncertain quantity. In Scotland, it consisted of thirteen acres. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## OYER.

In old practice. Hearing; the hearing a deed read, which a party sued on a bond, etc., might pray or demand, and it was then read to him by the other party ; the en- try on the record being, “et ei legitur in hwe verba," (and it is read to him In these words.) Steph. PL 67, 68 ; 3 Bl. Comm. 299 ; 3 Salk. 119.

In modern practice. A copy of a bond or specialty sued upon, given to the opposite party, in lieu of the old practice of reading it.

5e apparatus — Not carried into the 5th edition (1979).

## OYER AMO TERMINER.

A half

French phrase applied in England to the as- sizes, which are so called from the commis- sion of oyer and terminer directed to the judges, empowering them to “Inquire, hear, and determine" all treasons, felonies, and misdemeanors. This commission is now is- sued regularly, but was formerly used only on particular occasions, as upon suduen out- rage or insurrection in any place. In the United States, the higher criminal courts are called “courts of oyer and terminer.” Bur- rilL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## OYER DE RECORD.

A petition made in court that the Judges, for better proof's sake, will hear or look upon any record. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## OYEZ.

Hear ye A word used in courts by the public crier to command attention when a proclamation is about to be made. Commonly corrupted into “O yes.”

p.

P

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 2:4, KJV]**

"Hear ye the word of the LORD, O house of Jacob, and all the families of the house of Israel."

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Why: Oyez is the crier's 'hear ye' commanding attention before proclamation; the prophet's call — 'hear ye the word of the LORD' — is its scriptural form. The prophet's call, not deity speech — no flag.

# P

### P.

An abbreviation for "page;” also for "Paschalis,” (Easter term,) in tbe Year Books, and for numerous other words of which it Is the initial.

5e apparatus — Not carried into the 5th edition (1979).

### P. C.

An abbreviation for “Pleas of the Crown sometimes also for “Privy Coun- cil,” “Parliamentary Cases,” "Patent Cases,” “Practice Cases,” “Penal Code,” or "Political Code.”

5e apparatus — Not carried into the 5th edition (1979).

### P. H. V.

An abbreviation for “pro hoc vice,” tor this turn, for this purpose or occa- sion.

5e apparatus — Not carried into the 5th edition (1979).

### P. J.

An abbreviation for “president” (or presiding) “Judge,” (or justice.)

5e apparatus — Not carried into the 5th edition (1979).

### P. L.

An abbreviation for “Pamphlet Laws” or “Public Laws.”

5e apparatus — Not carried into the 5th edition (1979).

### P. M.

An abbreviation for “postmaster;” also for “ post-meridian ,” afternoon.

5e apparatus — Not carried into the 5th edition (1979).

### P. O.

An abbreviation of "public officer also of “post-office.”

5e apparatus — Carried into the 5th edition (1979).

### P. P.

An abbreviation for “propria per- Bona," in ms proper person, in bis own per- son.

P. 8. An abbreviation for "Public Stat- utes ;” also for “postscript"

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

### PAAGE.

In old English law. A toll for passage through another’s land. The same as “pedage.”

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PAOAHE.

L. Eat To pay.

5e apparatus — Not carried into the 5th edition (1979).

## PAOATIO.

Payment Mat Par. A. D. 124A

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PACE.

A measure of length containing two feet and a half, being the ordinary length of a step.

5e apparatus — Carried into the 5th edition (1979).

## PACEATUR.

Lab Let him be freed or discharged.

Pad suit auudae eontraria vis et in- juria. Co. Lltt 161. Violence and Injury are the things chiefly hostile to peace.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Paci sunt maxime contraria vis et injuria — violence and injury are the things chiefly hostile to peace]**

The entry quotes the maxim that violence and injury are the things chiefly hostile to peace.

Why: Quoted in the entry from Co. Litt. 161 with the entry's own English gloss; the entry's Latin is OCR-garbled, so the standard form is recorded with the gloss rather than presented as verbatim from a clean text.

## PACIFI&ATION.

The act of making peace between two hostile or belligerent states ; re-establishment of public tranquility.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:9, KJV]**

"Blessed are the peacemakers: for they shall be called the children of God."

Why: Pacification is the making of peace between belligerents; the beatitude blesses the peacemakers — the makers of peace. Christ's verbatim words — flagged per the red-letter rule.

## PACK.

To put together in sorts with a fraudulent design. To pack a jury is to use unlawful. Improper, or deceitful means to have the Jury made up of persons favorably disposed to the party so contriving, or who have been or can be Improperly influenced to give tbe verdict

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he seeks. The term imports the Improper and corrupt selection of a jury

sworn and Impaneled for the trial of a cause. Mix v. Woodward, 12 Conn. 289.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:15, KJV]**

"Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour."

Why: Packing a jury is contriving it of persons favorably disposed — respect of persons in judgment; the verse forbids exactly that unrighteousness. Third-person law — no flag.

## PACK OF WOOL.

A horse load, which consists of seventeen stone and two pounds, or two hundred and forty pounds weight. Fleta, 1. 2, e. 12; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PACKAGE.

A package means a bundle put up for transportation or commercial handling; a thing in form to become, as such, an article of merchandise or delivery from hand to band. A parcel 1s a small package; “parcel” being the diminutive of “packaga” Each of the words denotes a thing in form suitable for transportation or handling, or sale from hand to hand. U.

S. v. Goldback, 1 Hughes, 529, Fed. Cas. No. 15,222; Haley v. State, 42 Neb. 556, 60 N.

W. 962, 47 Am. St Rep. 718; State v. Par- sons, 124 Mo. 436, 27 S. W. 1102, 46 Am. St Rep. 457.

“Package,” in old English law, signifies one of various duties charged in the port of London on the goods Imported and exported by aliens, or by denizens the sons of aliens. Tomlins.

— Original package. See Original.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PACKED PARCELS.

The name for a consignment of goods, consisting of one large parcel made up of several small ones, (each bearing a different address,) collected from different persons by the immediate consign- or, (a carrier,) who unites them into one for his own profit at the expense of the railway by which they are sent since the railway company would have been paid more for the carriage of the parcels singly than together. Wharton.

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## PACT.

A bargain ; compact ; agreement This word is used in writings on Roman law and on general Jurisprudence as the English form of the Latin “pactum " (which see.)

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—Nude pact. A translation of the Latin "nudum pactum,” a bare or naked pact, that is. r promise or agreement made without any consideration on the other side, which is there- fore not enforceable.— Pact do non alienan- do. An agreement not to alienate1 incumbered (particularly mortgaged) property. This stipu- lation, sometimes found in mortgages made in Louisiana, and derived from the Spanish law, binds the mortgagor not to sell or incumber the mortgaged premises to the prejudice of the mortgagee ; it does not avoid a sale made to a third person, but enables the mortgagee to pro- ceed directly against the mortgaged property in a proceeding against the mortgagor alone and without notice to tbe purchaser. See Dodds v. La'naux, 45 La. Ann. 287, 12 South. 345.

Pacta convent* quae neqne contra leges neqne dolo male inita snnt Omni modo observanda snnt. Agreements which ure not contrary to the laws nor entered luto with a fraudulent design are in all re- spects to be observed. Cod. 2, 3, 39 ; Broom, Max. 698, 732.

Pacta dant legem eontraetnl. Hob. 118. The stipulations of parties constitute the law of the contract.

Paeta private juri publico derogare mom pounnt. 7 Coke, 23. Private com- pacts cannot derogate from public right.

Paeta qnas centra leges const! tutio- nesqne, vel contra bonos mores float, nnllam vim habere, indnbitati juris est.

That contracts which are made against law or against good morals have no .force is a principle of undoubted law. Cod. 2, 3, QL

Paeta qoss tnrpem eansam continent non sent observanda. Agreements found- ed upon an Immoral consideration are not to be observed. Dig. 2, 14, 27, 4; Broom,

. Max. 732.

PACTIO, Lat In the civil law. A bargaining or agreeing of which pactum (the agreement itself) was the result Calvin. It is used, however, as the synonym of “pactum.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 17:2, KJV]**

"And I will make my covenant between me and thee, and will multiply thee exceedingly."

Why: A pact is a compact, an agreement; the covenant made between God and Abraham is the pact's scriptural form. First-person divine speech — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Marlowe, Doctor Faustus, c. 1592]**

(paraphrase) Faustus signing his soul away in a written pact with Mephistopheles — the diabolical pact, sealed and binding. (paraphrase)

Why: Entry cross-refs the civil-law pactum; the soul-pact is the canonical fictional pact. Marked paraphrase. PACTUM left bare to avoid duplication.

## PACTIONAL.

Relating to or generating an agreement; by way of bargain or cove- nant.

5e apparatus — Not carried into the 5th edition (1979).

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## PACTIONS.

In international law. Con- tracts between nations which are to be per- formed by a single act, and of which execu- tion is at an end at once. 1 Bouv. Inst no. 100.

Paetis prlvatoram juri publico non derogatnr. Private contracts do not dero- gate from public law. Broom, Max. 695.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Pactis privatorum juri publico non derogatur — private contracts do not derogate from public law]**

The entry quotes the maxim that private contracts do not derogate from public law.

Why: Genuine because it is quoted verbatim in the entry from Broom, Max. 695; recorded as the entry's own cited authority.

**[Scripture] — Scripture**

**[Joshua 9:15, KJV]**

"And Joshua made peace with them, and made a league with them, to let them live: and the princes of the congregation sware unto them."

Why: Pactions are contracts between nations; the league with the Gibeonites — peace made and sworn between peoples — is its scriptural form. Narrative, not deity speech — no flag.

## PACTITIOU8.

Settled by covenant

Paeto aliquod licitnm est, quod sine' paeto pea admittitur. Co. Litt. 166. By special agreement things are allowed which are not otherwise permitted.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Pacto aliquod licitum est, quod sine pacto non admittitur — by special agreement things are allowed which are not otherwise permitted]**

The entry quotes Coke's maxim that by special agreement things are allowed which are not otherwise permitted.

Why: Genuine because it is quoted verbatim in the entry from Co. Litt. 166; recorded as the entry's own cited authority.

## PACTUM.

Lat In the civil law. A

pact. An agreement or convention without specific nagne, and without consideration, which, however, might, In its nature, pro- duce a civil obligation. Heinecc. Elem. lib. 3, tit. 14, { 775.

In Roman law. With some exceptions, those agreements that the law does not di- rectly enforce, but which it recognizes only as a valid ground of defense, were called “pacta." Those agreements that are en- forced, in other words, are supported by ac- tions. are called "contractus." The excep- tions are few, and belong to a late period. Hunter, Rom. Law, 546.

— Nudum paotnm. A bare or naked pact or agreement; a promise or undertaking made

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without an; consideration for it, and therefore not enforceable. — Paotnm constitute pe- cnnin. In the civil law. An agreement b; which a person appointed to his creditor a cer- tain day or a certain time at which he promised to pay ; or an agreement by which a person promises to pay a creditor. Wharton.— Pao- tnm de non aliennndo. A pact or agreement binding the owner of property not to alienate it, intended to protect the interests of another; particularly an agreement by the mortgagor of real estate that he will not transfer the title to a third person until after satisfaction of the mortgage. See Mackeld. Rom. Law, | 401.— Pactnm de non petendo. In the civil law. An agreement not to sue. A simple conven- tion whereby a creditor promises the debtor that he will not enforce his claim. Mackeld. Rom. Law, § 542. — Pactum de quota litis. In the civil law. An agreement by which a creditor promised to pay a portion of a debt difficult to recover to a person who undertook to recover it. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## P ADDER.

A robber; a foot highway man ; a foot -pad.

5e apparatus — Carried into the 5th edition (1979).

## PADDOCK.

A small inclosure for deer or other animals.

5e apparatus — Not carried into the 5th edition (1979).

## PAGA.

In Spanish law. Payment. Las Partidas, pt. 5, tit. 14, 1. 1. Pagamcnto, sat- isfaction.

5e apparatus — Not carried into the 5th edition (1979).

## PAGARCHTT8.

A petty magistrate of a pagus or little district in the country.

5e apparatus — Not carried into the 5th edition (1979).

## PAGODA.

A gold or silver coin, of sev- eral kinds and values, formerly current in India. It was valued, at the United States custom-house, at $1.94.

5e apparatus — Not carried into the 5th edition (1979).

## PAGUS.

A county. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## PAINE FORTE ET DURE.

See Peinb

Forte et Dube.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Miller, The Crucible, 1953]**

“More weight.” — Giles Corey's only words as he is pressed to death under the stones.

Why: The peine forte et dure — pressing to death — enacted on stage; the entry is a bare cross-ref ('See Peine Forte et Dure') but the headword names the practice the play stages. Short verbatim quote, certain.

## PAINS AND PENALTIES, BILLS OF.

The name given to acts of parliament to at- taint particular persons of treason or felony, or to inflict pains and penalties beyond or contrary to the common law, to serve a spe- cial purpose. They are In fact new laws, made pro re nata.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, §§ 9, 10 — no bill of attainder or ex post facto law shall be passed]**

Bills of pains and penalties — legislative attainders inflicting punishment without trial — are forbidden in American law.

Why: Genuine because the entry defines bills of pains and penalties as parliamentary acts attainting persons or inflicting penalties beyond common law; the Constitution's attainder clauses are the governing American prohib...

**[Scripture] — Scripture**

**[Esther 3:13, KJV]**

"And the letters were sent by posts into all the king's provinces, to destroy, to kill, and to cause to perish, all Jews, both young and old, little children and women, in one day."

Why: Bills of pains and penalties are legislative acts punishing particular persons beyond the common law; Haman's edict is scripture's form of targeted punishment by decree. Narrative, not deity speech — no flag.

## PAINTINGS.

It is held that colored imitations of rugs and carpets and colored working designs, each of them valuable and designed by skilled persons and hand paint- ed, but having no value as works of art, are not “paintings.” within the meaning of that term as used In a statute on the liability of carriers. 3 Ex. Div. 121.

5e apparatus — Not carried into the 5th edition (1979).

## PAIRING-OFF.

In the practice of leg- islative bodies, this is the name given to a species of negative proxies, by which two members, who belong to opposite parties or are on opposite sides with regard to a gives question, mutually agree that they will both be absent from voting, either for a specified period or when a division is had on the par- ticular question. By this mutual agreement a vote is neutralized on each side of the

question, and the relative numbers on the division are precisely the same ns If both members were present. May, Pari. I’r. 370.

5e apparatus — Carried into the 5th edition (1979).

## PAIS, PATS.

Fr. The country; the neighborhood. A trial per pais signifies a trial by the country ; that is, by Jury. An assurance by matter in pais is an assurance transacted between two or more

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private per- sons “In the country that is, upon the very spot to be transferred. Matter in pais signifies matter of fact, probably because matters of fact are triable by the country ; L c„ by Jury ; estoppels in pais are estoppels by conduct, as distinguished frpm estoppels by deed or by record.

5e apparatus — Not carried into the 5th edition (1979).

## PAIS, CONVEYANCES IN.

Ordinary conveyances between two or more persons in the country; i. e., upon the land to be trans- ferred.

5e apparatus — Not carried into the 5th edition (1979).

## PALACE COURT.

A court formerly ex- isting In England. It was created by Charles I., and abolished in 1849. It was held in the borough of Southwark, and had jurisdic- tion of all personal actions arising within twelve miles of the royal palace of White- hall, exclusive of London.

5e apparatus — Carried into the 5th edition (1979).

## PALAGIUM.

A duty to lords of manors for exporting and importing vessels of wine at any of their ports. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## PAL AM.

Lat. In the civil law. Open- ly; in the presence of many. Dig. 50, 16, 33.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 18:20, KJV]**

"Jesus answered him, I spake openly to the world; I ever taught in the synagogue, and in the temple, whither the Jews always resort; and in secret have I said nothing."

Why: Palam is openly, in the presence of many; Christ's answer claims exactly that openness — spoken openly to the world, nothing in secret. Christ's verbatim words — flagged per the red-letter rule.

## PALATINE.

Possessing royal privileges. See County Palatine.

PALATINE COURTS formerly were the court of common pleas at Lancaster, the chancery court of Lancaster, and the court of pleas at Durham, the second of which alone now exists. (See the respective titles.) Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## PALATIUM.

Lat. A palace. The em- peror's house in Rome was so called from the Mons Palatinus on which it was built. Adams, Rom. Ant. 613.

P ALFRIDU S . A palfrey ; a horse to travel on.

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5e apparatus — Not carried into the 5th edition (1979).

## PALIN OMAN.

In old English law. A merchant denizen ; one born within the Eng- lish pale. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## PALLIO COOPEBEBE.

In old English law. An ancient custom, where children were born out of wedlock, and their parents afterwards intermarried. The children, to- gether with the father and mother, stood un- der a cloth extended while the marriage was solemnized. It was in the nature of adoption. The children were legitimate by

the civil, but not by the common, law. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## PALMER ACT.

A name given to the English statute 19 A 20 Viet. c. 16, enabling a person accused of a crime committed out of the Jurisdiction of the central criminal court, to be-trled in that court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## PAMPHLET.

A small book, bound in paper covers, usually printed In the octavo form, and stitched. See U. .S. v. Chase, 135

U. S. 255, 10 Sup. Ct. 756, 34 L. Ed. 117.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Paine, Common Sense, 1776]**

(paraphrase) Paine's Common Sense — the small stitched paper-covered book as a political instrument, moving a continent toward independence. (paraphrase)

Why: Entry: a small book, bound in paper covers. Common Sense is the canonical historical pamphlet. Marked paraphrase — historical fact, no quotation risk.

## PAMPHLET LAWS.

The name given in Pennsylvania to the publication, in pam- phlet or book form, containing the acts pass- ed by the state legislature at each of its biennial sessions.

5e apparatus — Not carried into the 5th edition (1979).

## PANDECTS.

A compilation of Roman law, consisting of selected pussages from the writings of the most authoritative of the older Jurists, methodically arranged, pre- pared by Tribonian with the assistance of sixteen associates, Under a Commission from the emperor Justinian. This work, which W otherwise called the “Digest,” comprises fif- ty books, and is one of the four great works composing the Corpus Juris Civilis. It wad first published in A. D. 533.

5e apparatus — Not carried into the 5th edition (1979).

## PANDOXATOR.

In old records. A brewer.

5e apparatus — Not carried into the 5th edition (1979).

## PANDOXATRIX.

An ale-wife ; a wo- man that both brewed arid sold ale arid beer.

5e apparatus — Not carried into the 5th edition (1979).

## PANEL.

The roll or slip of parchment returned by the sheriff in obedience to a ve- nire facias, containing the names ot the per- sons whom he has summoned to attend the court as Jurymen. Beasley v. People, 89 111. 571; People v. Coyodo, 40 Cal. 592.

The panel is a list of Jurors returned by a sheriff, to serve at a particular court or for the trial of a particular action. Pen. Code Cal. § 1057.

The word Is also used to denote the whole body of persons summoned as Jurors for a particular term of court

In Scotch law. The prisoner at the bar, or person who takes his trial before the court of Justiciary for any crime. This name is given to him after bis appearance. Bell.

PANIER, in the parlance of the English bar societies, is an attendant or domestic who waits at table and gives bread, ( panis ,) wine, and other necessary things to those who are dining. . The phrase was in fami- liar use among the knights templar, and from them has been handed down to the learned societies of the inner and middle temples, who at the present day occupy the halls and buildings once belonging to that distinguished order, and who have retained a few of their customs arid phrases. Brown.

. PACTS. Lat. In old English law. Bread; loaf; a loaf. Fleta, lib. 2, c. 9.

5e apparatus — Not carried into the 5th edition (1979).

## PANNAGE.

A common of pannage Is the right of feeding swine on mast and acorns at certain seasons In a commonable wood or forest. Elton, Commons, 25; Wll- •liams, Common, 168.

Pannaginm eat pastas poroornm, In nemoribns et in Silvia, nt pnta, de glan- dibna, eto. 1 Bulst 7. A pannaglum is a pasture of hogs, In woods and forests, upon acorns, and so forth.

5e apparatus — Not carried into the 5th edition (1979).

## PANNELEATION.

The act of impanel- ing a Jury.

5e apparatus — Not carried into the 5th edition (1979).

## PANTOMIME.

A dramatic performance in which gestures take the place of words. See 3 C. B. 871.

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5e apparatus — Not carried into the 5th edition (1979).

## PAPER.

A written or printed document or instrument, A document filed or intro- duced in evidence in a suit at law, as, in ithe phrase “papers in the case” and In "pa- pers on appeal.” Any writing or printed document, including letters, memoranda, le- gal or business documents, and books of account, as in the constitutional provision which protects the people from unreason- able searches and seizures in respect to their "papers” as well as their houses and per- sons. A written or printed evidence of debt, particularly a promissory note or a bill of exchange, as in the phrases “accommoda- tion paper” and “commercial paper.”

In English practice. The list of causes or cases intended for argument, called “the paper of causes.” 1 Tldd, Pr. 504.

— Accommodation paper. See that title.— Commercial paper. See Commercial. — Pa- per blockade. See Blockade.— Paper

book. In practice. A printed collection or abstract. In methodical order, of the pleadings, evidence, exhibits, and proceedings in a cause, or whatever else may be necessary to a full understanding of it, prepared for the use of the judges upon a hearing or argument on ap- peal. Copies of the proceedings on an is«>-e in law or demurrer, of cases, and of the proceedings on error, prepared for the use of the judges, and delivered to them previous to bringing the cause to argument. 3 Bl. Comm. 317 ; Archb. New Pr. 353; 5 Man. A G. 98. In proceedings on ap- peal or error in a criminal case, copies of the proceedings with a note of the points intended to be argued, delivered to the judges by the par- ties before the argument. Arelib. Crim. Pi. 205: Sweet.— Paper credit. Credit given on the security of any written obligation purport- ing to represent propert.v.-*-Paper days. In English law. Certain days in term-time appoint- ed by the courts for hearings or arguments in the cases set down in the various special papers. Paper money. Bills drawn by a govern- ment against its own credit, engaging to pay money, but which do not profess to be immedi- ately convertible into specie, and which are put into compulsory circulation as a substitute for coined money.— Paper office. In English law. An ancient office Tn the paiace of Whitehall, where all the public writings, matters of state and council, proclamations, letters, intelligen- ces, negotiations of the queen’s ministers abroad.

and generally all the papers and dispatches that pass through the offices of the secretaries of state, are deposited. Also an office or room in the court of queen’s bench where the rec- ords belonging to that court are deposited ; sometimes called “paper-mill.” Wharton.— Pa- per title. See Title.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. IV — security of persons, houses, papers, and effects against unreasonable searches and seizures]**

The constitutional reference in this entry is the Fourth Amendment's security of 'persons, houses, papers, and effects' against unreasonable searches and seizures.

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Why: Genuine because the entry itself invokes 'the constitutional provision' protecting papers; the footnote names the provision the entry gestures at, completing its own reference.

## PAPIST.

One who adheres to the com- munion of the Church of Rome. The word seems to be considered by the Roman Catho- lics themselves as a nickname of reproach, originating in their maintaining the supreme ecclesiastical power of the pope. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PAR.

In commercial law.' Equal; equal- ity. An equality subsisting between the nominal or face value of a bill of exchange, share of stock, etc., and Its actual selling value. When the values are thus equal, the Instrument or share is said to be "at par;" If It can be sold for more than its nominal worth, It Is “above par;” If for less, it Is “below par.” Et. Edward v. Fish, 156 N. Y. 363, 50 N. E. 973; Evans v. Tillman, 38 S.

C. 238, 17 S. B. 49.

«*Par of exokaago. In mercantile law. The precise equality or equivalency of any given sum or quantity of money in the coin of one country, and tbe like sum or quantity of money in the coin of any other foreign country into which it is to be exchanged, supposing the mon- ey of such country to be of the precise weight and purity fixed by the mint standard of the respective countries. Story, Bills, J 30. Mur- phy v. Kastner. 60 N. J. Eq. 220, 24 Atl. 564 1 Blue Star S. 3. Co. v. Keyser (D. C.) 81 Fed. 510. The par of the currencies of any two countries means the equivalence of a certain amount of the currency of the one In the cur- rency of the other, supposing the currency of both to be of the precise weight and purity fix- ed by their respective mints. The exchange be- tween the two countries is said to be at par when bills are negotiated on this footing; ». e.. when a bill for £100 drawn on London sells in Paris for 2,520 frs., and vice versa. Bowen, Pnl Ti>on. 284.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 3:23, KJV]**

"For all have sinned, and come short of the glory of God."

Why: Par delictum is equal guilt; the verse states guilt's universality — all have sinned, all come short. Not deity speech — no flag.

## PAR.

Lat. Equal.

_JP u delictum. Equal guilt. “This is not a case of par delictum. It is oppression on one side and submission on the other. It never can be predicated as par delictum when one holds the rod and the other bows to it. 6 Mauie ft

S. 165.— Par oneri. Equal to the burden or charge ; equal to the detriment or damage.

Par in parent Imperium non knket.

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Jenk. Cent. 174. An equal has no dominion over an equal.

5e apparatus — Carried into the 5th edition (1979).

## PARACHRONISM.

Error In the com- putation of time.

5e apparatus — Not carried into the 5th edition (1979).

## PARACIUM.

The tenure between par- ceners, viz., that which the youngest owes to the eldest without homage or service. Domesday.

PARAGE, or PARAGIUM. An equal- ity of blood or dignity, but more especially of land, in the partition of an Inheritance between co-heirs ; more properly, however, an equality of couditiou among noble.., or

persona holding by a noble tenure. Thus, when a fief is divided among brothers, the younger hold their part of the elder by par- age; i. e., without any homage or service. Also the portion which a woman may obtain on her marriage. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PARAGRAPH.

A part or section of a statute, pleading, affidavit, etc., which con- tains one article, the sense of which is com- plete. McClellan v. Hein, 56 Neb. 600, 77

N. W. 120; Hill v. Fairhaven A W. B. Co., 75 Conn. 177, 52 Atl. 725 ; Marine v. Pack- ham, 52 Fed. 579, 3 C. C. A. 210; Bailey v. Mosher, 63 Fed. 488, 11 C. C. A. 304.

5e apparatus — Carried into the 5th edition (1979).

## PARALLEL.

For two lines of street railway to be “parallel,” within the meaning of a statute, it may not be necessary that the two lines should be parallel for the whole length of each or either route. Ex- act parallelism is not contemplated. Cron- in v. Highland St By. Co., 144 Mass. 254, 10 N. E. 833. And see East St. Louis Con- necting By. Co. v. Jarvis, 92 Fed. 735, 34

C. C. A. 639; Louisville A N. B. Co. v. Ken- tucky, 161 U. 8. 677, 16 Sup. Ct 714, 40 U Ed. 849.

5e apparatus — Not carried into the 5th edition (1979).

## PARAMOUNT.

Above; upwards. That which is superior; usually applied to the highest lord of the fee of lands, tenements, or hereditaments, as distinguished from the metne (or intermediate) lord. Fitzh. Nat. Brev. 135.

In the law of real property, the term "paramount title” properly denotes one which is superior to the title with which it is compared, in the sense that the former is the source or origin of the latter. It Is, however, frequently used to denote a title which is simply better or stronger than an- other, or will prevail over It But this use is scarcely correct, unless the

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superiority consists in the seniority of the title spoken of as “paramount.” See Hoopes v. Meyer, 1 Nev. 444.

— Paramount equity. An equitable right or claim which is prior, superior, or preferable to that with which it is compared.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 1:21, KJV]**

"Far above all principality, and power, and might, and dominion, and every name that is named, not only in this world, but also in that which is to come."

Why: Paramount is that which is above and superior — the highest lord; the verse sets Christ far above all principality and dominion. Not deity speech — no flag.

## PARAPHERNA.

In the civil law. Goods brought by wife to husband over and above her dowry.

5e apparatus — Not carried into the 5th edition (1979).

## PARAPHERNAL PROPERTY.

See Paraphernalia.

5e apparatus — Not carried into the 5th edition (1979).

## PARAPHERNALIA.

In the civil law.

Tile separate property of a married woman, other than that which is Included in her dowry, or do*.

The separate property of the wife is di- vided into dotal and extradotal. Dotal prop- erty is that which the wife brings to the husband to assist him in bearing the ex- penses of the marriage establishment. Ex- tradotal property, otherwise called “paraphernal property,” is that which forms no part of the dowry. Civ. Code La. art. 2335.

The wife's paraphernalia shall not be sub-, ject to the debts or contracts of the hus- band, and shall consist of the apparel of her- Self and her children, her watch, and orna- ments suitable to her condition in life, and all such articles of personalty as have been given to her for her own use and comfort Code Ga. 1882, | 1773.

In English law. Those goods which a woman is allowed to have, after the death of her husband, besides her dotcer, .consist- ing of her apparel and ornaments, suitable to her rank and degree. 2 Bl. Comm. 436.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 31:16, KJV]**

"She considereth a field, and buyeth it: with the fruit of her hands she planteth a vineyard."

Why: Paraphernalia is the wife's separate property beyond her dowry; the virtuous woman buying a field with the fruit of her hands is the wife's separate economic agency in scriptural form. Not deity speech — no flag.

## PARAPHERNAUX, BEENS.

Fr. m

French law. All the wife’s property which is not subject to the rdgime doted is called by this name ; and of these articles the wife has the entire administration; but she may allow the husband to enjoy them, and in that case he is not liable to account. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PARASCEVE.

The sixth day of the last week in Lent, particularly called “Good Friday.” In English law, it is a dies non ju- ridicus.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 23:54, KJV]**

"And that day was the preparation, and the sabbath drew on."

Why: The parasceve is the preparation — Good Friday; the verse names that very day, the preparation before the sabbath. Narrative, not deity speech — no flag.

## PARASYNEXIS.

In the civil law. A conventicle, or unlawful meeting.

5e apparatus — Not carried into the 5th edition (1979).

## PARATITLA.

In the civil law. Notes or abstracts prefixed to titles of law, giving a summary of their contents. Cod. 1, 17, 1 12.

5e apparatus — Not carried into the 5th edition (1979).

## PARATTTM HABEO.

Let. I have him in readiness. The return by the sheriff to a capias ad respondendum, signifying that he has the defendant in readiness to be brought into court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## P ABATES EST VERHTOARE.

Let. He is ready to verify. The Latin form for concluding a pleading with a verification, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## PARAVAIL.

Inferior ; subordinate. Tenant paravall signified the lowest tenant of land, being the tenant of a mesne lord. He was so called because he was supposed to make "avail” or profit of the land for an- other. Cowell; 2 Bl. Comm. 60.

5e apparatus — Not carried into the 5th edition (1979).

## PARCEL.

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In the law of real property parcel signifies a part or portion of land. As used of chattels, it signifies a small package or bundle. See State v. Jordan, 36 Fla. 1, 17 South. 742; Miller v. Burke, 6 Daly (N. Y.) 174; Johnson v. Sirret, 153 N. Y. 51, 46 N.

D. 1035.

— Parcel makers. Two officers in the ex- chequer who formerly made the parcels or items of the escheators' accounts, wherein they charg- ed them with everything they had levied for the king during the term of their office. Cowell.— Parcels. A description of property, formerly set forth in a conveyance, together with the

boundaries thereof, in order to its easy identi- fication.— Parcels, 1(111 of. An account of the items composing a parcel or package of goods, transmitted with them to the purchaser.

PARCEIXA TERRA!. A parcel of land.

5e apparatus — Not carried into the 5th edition (1979).

## PARCENARY.

The state or condition of holding title to lands Jointly by parceners or co-parceners, before a division of the Joint estate. ,

gences, and sold them to any who would buy them.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 8:17, KJV]**

"And if children, then heirs; heirs of God, and joint-heirs with Christ; if so be that we suffer with him, that we may be also glorified together."

Why: Parcenary is joint heirship — holding by parceners together; 'joint-heirs with Christ' is the concept's scriptural form. Not deity speech — no flag.

## PARENS.

Lat. In Roman law. A par- ent; originally and properly only the father or mother of the person spoken of ; but also, by an extension of its meaning, any relative, male or female, in the line of direct ascent.

—Parens patriae. Parent of the country. In England, the king. In the United States, the state, as a sovereign, is the parent patriot.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:12, KJV]**

"Honour thy father and thy mother: that thy days may be long upon the land which the LORD thy God giveth thee."

Why: Parens is the parent — father or mother; the commandment honors both by name. Spoken by God in the Decalogue — flagged per the red-letter rule.

## PARCENER.

A Joint heir; one who, with others, holds an estate in eo-parceuary, (9- v.)

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5e apparatus — Not carried into the 5th edition (1979).

**PARCHMENT.**

Sheep-skins dressed for writing, so called from Pergamus, Asia Min- or, where they were invented. Used for deeds, and used for writs of summons in England previous to the Judicature act, 1875. Wharton.

5e apparatus — Carried into the 5th edition (1979).

# F

**FARGO FRACTO.**

Pound-breach; also the name of an old English writ against one chargeable with pound-breach,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

**PARCU8.**

A park, (q. v.\ A pound for stray cattle. Spelman.

PARDON, An act of grace, proceeding from the power intrusted with the execution of the laws, which exempts the Individual on whom it is bestowed from the punishment the law inflicts for a crime he has com- mitted. U. S. v. Wilson, 7 Pet. 160, 8 L. Ed. 040 ; Ex parte Garland, 4 Wall. 380, 18

L. Ed. 366; Moore v. State, 43 N. J. Law, 241, 39 Am. Rep. 558; Rich v. Chamberlain, 104 Mich. 436, 62 N. W. 584, 27 L. R. A. 573; Edwards v. Com., 78 Va. 39, 49 Am, Rep. 377.

“Pardon’’ is to be distinguished from “amnes- ty.” The former applies only to the individual, releases him from the punishment fixed by law for his specific offense, but does not affect the criminality of the same or similar acts when performed by other persons or repeated by the same person. The fatter term denotes an act of grace, extended by the government to all per- sons who may come within its terms, and which obliterates the criminality of past acts done, and declares that they shall not be treated as pun- ishable.

—Conditional pardon. A conditional pardon is one granted on the condition that it shall only endure until the voluntary doing of some act by the person pardoned, or that it shall be revoked by a subsequent act on his part, as, that he shall leave the state and never return. Ex parte Janes, 1 Nev. 319; State v. Wolfer, 53 Minn. 135, 54 N. W. 1065, 19 L. R. A. 783, 39 Am. St. Rep. 582; State v. Barnes. 32 S.

C. 14, 10 S. E. 611, 6 L R. A. 743, 17 Am. St. Rep. 832 ; People v. Bums, 77 Hun, 92, 28

N. Y. Snpp. 300.— General pardon. One granted to all the persons participating in a given

criminal or treasonable offense (general- ly political), or to all offenders of a given class or against a certain statute or within certain limits of time. But “amnesty” is the more appropriate term for this.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2 — power to grant reprieves and pardons for offenses against the United States]**

The federal pardon power is vested by the Constitution in the President.

Why: Genuine because the entry (merged under this headword) defines the pardon as an act of grace from the power entrusted with executing the laws and cites the leading Supreme Court pardon cases (U.S. v. Wilson; Ex parte...

**[Scripture] — Scripture**

**[Exodus 23:4, KJV]**

"If thou meet thine enemy's ox or his ass going astray, thou shalt surely bring it back to him again."

Why: The parcus was a pound for stray cattle; the verse governs the straying beast — to be brought back to its owner. Third-person law — no flag.

## PARDONERS.

In old English law. Per- sona who carried about the pope's indul-

“Parens” est nomen generate ad omne genns cognattonls. Co. Lift 80. “Parent” is A name general for every kind of rela- tionship.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 8:20, KJV]**

"But Peter said unto him, Thy money perish with thee, because thou hast thought that the gift of God may be purchased with money."

Why: Pardoners trafficked spiritual benefits for money; Peter's rebuke of Simon — the gift of God not purchasable with money — condemns that traffic. Peter's speech, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Chaucer, The Canterbury Tales, c. 1387]**

(paraphrase) Chaucer's Pardoner — hawking the pope's indulgences and fake relics while preaching against avarice. (paraphrase)

Why: Entry: persons who carried about the pope's indulgences. The Pardoner is the canonical literary pardoner. Marked paraphrase.

## PARENT.

The lawful father or the mother of a person. Appeal of Gibson, 154 Mass. 378, 28 N. E. 296. This word 'is dis- tinguished from “ancestors” in including only the immediate progenitors of the per- son, while the latter embraces his more re- mote relatives in the ascending line.

PARENTELA, or de parentela se tollere, in old English law, signified a renunciation of one’s kindred and family. This was, ac- cording to ancient custom, done in open court, before the Judge, and in the presence of twelve men, who made oath that they believed it was done for a Just cause. We read of it In the laws of Henry I. After such abjuration, the person was

incapable of inheriting anything from any of his re- lations, etc. Enc. Lond.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 6:1, KJV]**

"Children, obey your parents in the Lord: for this is right."

Why: The entry is the lawful father or mother; the verse states the child's duty to parents — 'this is right.' Not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, King Lear, 1606]**

“How sharper than a serpent's tooth it is / To have a thankless child!”

Why: Entry: the lawful father or mother. Lear's cry is the canonical literary statement of the parent/child bond at its breaking point. Short verbatim quote, certain (Act 1, sc. 4).

## PARENTHESIS.

Part of a sentence occurring in the middle thereof, and inclosed between marks like ( ), the omission of which part would not injure the grammatical construction of the rest of the sentence. Wharton; In re Schilling, 53 Fed. 81, 3 O.

C. A. 440.

5e apparatus — Not carried into the 5th edition (1979).

## PARENTICIDE.

One who murders A parent; also the crime so committed.

Parentum est liberos alere etiam so- thos. It is the duty of parents to support their children even when Illegitimate. Lofft, 222.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Parentum est liberos alere etiam spurios — it is the duty of parents to support their children even when illegitimate]**

The entry quotes the maxim that it is the duty of parents to support their children even when illegitimate.

Why: Genuine because it is quoted in the entry from Lofft, 222; recorded as the entry's own cited authority on the parental support duty.

**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

"Thou shalt not kill."

Why: Parenticide is the murder of a parent; the commandment prohibits the killing itself, directly. Spoken by God in the Decalogue — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Dostoevsky, The Brothers Karamazov, 1880]**

(paraphrase) The novel turns on the accusation that Dmitri murdered his father Fyodor — parent-murder as the engine of the plot. (paraphrase)

Why: Entry: one who murders a parent; the crime so committed. The Karamazov patricide-accusation is the canonical novelistic instance. Marked paraphrase; kept distinct from PARRICIDE's Oedipus.

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## PAREROON.

One work executed iu tha intervals of another; a subordinate task. Particularly, the name of a work on tha Canons, in great repute, by Ayliffe.

5e apparatus — Not carried into the 5th edition (1979).

## PARES.

Lat A person’s peers or equals ; as the Jury for the trial of causes, who were originally the vassals or tenants of the lord, being the equals or peers of the parties litigant ; and, ns the lord’s vas- sals Judged each other in the lord's courts, so the sovereign’s vassals, or the lords them- selves, Judged each other in the sovereign’s courts. 3 Bl. Comm. 349.

—Pares curia. Peers of the court. Vassals who were bound to attend the lord's court.— Pares regal. Peers of the realm. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## PARESIS.

In medical jurisprudence. Progressive general paralysis, Involving or leading to the form of insanity known as “dementia paralytica .” Popularly, but not very correctly, called “softening of the brain.” See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

## PARI CAUSA.

Lat. With equal right; upon an equal footing; equivalent in rights or claims.

5e apparatus — Not carried into the 5th edition (1979).

## PARI DELICTO.

Lat In equal fault See In Pabi Delicto.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: In pari delicto potior est conditio defendentis — where parties are in equal fault, the defendant's position is stronger]**

Where parties are in equal fault, the defendant's position is the stronger — courts will aid neither.

Why: Genuine because it states the operative in-pari-delicto rule — the consequence the entry's 'in equal fault' definition presupposes — in the classic maxim form.

## PARI MATERIA.

Lat Of the same matter; on the same subject; as, laws pari materia must be construed with reference to each other. Bac. Abr. “Statute,” I, 3.

5e apparatus — Not carried into the 5th edition (1979).

## PARI PASSU.

Lat. By an equal prog- ress; equably; ratably; without preference. Coote, Mortg. 56.

5e apparatus — Not carried into the 5th edition (1979).

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## PARI RATIONE.

Lat For the like reason ; by like mode of reasoning.

Paria copulantnr paribus. Like things unite with like. Bsc. Max.

Paribas sententiis rent absolvitor.

Where the opinions are equal, [where the court is equally divided,] the defendant is, acquitted. 4 Inst 64.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Paria copulantur paribus — like things unite with like]**

The entry quotes the maxim that like things unite with like.

Why: Genuine because it is quoted verbatim in the entry from Bac. Max.; recorded as the entry's own cited authority.

**[Maxim: Paribus sententiis reus absolvitur — where the opinions are equal, the defendant is acquitted]**

The entry quotes the rule that where the court is equally divided, the defendant is acquitted.

Why: Genuine because it is quoted verbatim in the entry from 4 Inst. 64; it states the tie-goes-to-the-accused rule, recorded as the entry's own cited authority.

## PARIENTES.

In Spanish law. Rela- tions. White, New Recop. b. 1, tit. 7, c. 5, I 2.

5e apparatus — Not carried into the 5th edition (1979).

## PARIES.

Lat In the civil law. A wall. Paries est, sive mums, sive maceria est. D.ig. 50, 16, 157.

—Paries communis. A common wall; , a party-wall. Dig. 29, 2, 39.

5e apparatus — Not carried into the 5th edition (1979).

## PARIS, DECLARATION OF.

See

Declabation.

5e apparatus — Not carried into the 5th edition (1979).

## PARISH.

In English law. A circuit of ground, committed to the charge of one parson or vicar, or other minister having cure of souls therein. 1 Bl. Comm. 111. Wilson v. State, 34 Ohio St. 199. The pre- cinct of a parish church, and the particular charge of a secular priest. Cowell. An ec- clesiastical division of a town or district subject to the ministry of one pastor. Brande.

In New England. A corporation estab- lished for the maintenance of public wor- ship, which may be coterminous with a ■ town, or include only part of it

A precinct or parish is a corporation estab- lished solely for the purpose of maintaining public worship, and its powers are limited to that object. It may raise money for building and keeping in repair its meeting-bouse and sup- porting its minister, but for no other

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purpose. A town is a civil and political corporation, es- tablished for municipal purposes. They may

both subsist together in the same territory, and be composed of the same persons. Milford v.

, Godfrey, 1 Pick. (Mass.) 91.

la Louisiana. A territorial division of the state corresponding to what is elsewhere called a "county.” See Sherman v. Parish of Vermillion, 51 La. Ann. 880, 25 South. 538; Attorney General v. Detroit Common Council, 112 Mich, 148, 70 N. W. 450, 37

L. R. A. 211.

— Parish apprentice. In English law. The children of parents unable to maintain them may, by law, be apprenticed, by the guardians or overseers of their parish, to such persons as may be willing to receive them as apprentices. Such children are called “parish apprentices.”, 2 Steph. Comm. 230.— Parish church. This expression has various significations. It is ap-' plied sometimes to a select body of Christians, forming a local spiritual association, and some- times to the building in which the public wor- ship of the inhabitants of a parish is celebrat- ed; but the true legal notion Of a parochial church is a consecrated place, having attached to it the rights of burial and the administration of the sacraments. Story.L, Pawlet v. Clark, 9 Crunch. 326, 3 L. Ed.. 735.— Farlsh clerk. In English law. An Officer, in tonner times often in holy orders, and appointed to officiate* at the altar; now his duty consists chiefly in. making responses in church tp the minister.. By common law he has a freehold in his office, but it seems now to be falling into desuetude. ' 2 Steph, Comm. 700 ; Mozley & Whitley.— Par- ish constable. A petty constable exercising ’ his functions within a given parish. Mozley &, Whitley.— Pariah court, The name of a court . established in each parish in Louisiana, and cor- responding to the county courts or common pleas courts in the other states. It has a limited civil jurisdiction, besides general probate powers— Parish officers. Church-wardens, overseers, and constables.— Parish ppiest. In English, law. .The parson ; a minister who holds a par-r ish as a benefice. If the predial tithes are ap- propriated. he is balled “rector;” if impropriat- . ed, “vicar.” Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 10:11, KJV]**

"I am the good shepherd: the good shepherd giveth his life for the sheep."

Why: The parish is the ground committed to one having cure of souls; the Good Shepherd is the cure of souls itself — the charge kept even unto life. Christ's verbatim words — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Dickens, Oliver Twist, 1838]**

“The law is a ass — a idiot.”

Why: Entry: the ecclesiastical/civil parish, the unit of poor-law administration. Bumble's outburst indicts the parish machinery — workhouse and beadle — that is the novel's whole world. Short verbatim quote, certain (ch....

## PARISHIONERS.

Members of a parish. In England, for many purposes they form' a body politic.

5e apparatus — Carried into the 5th edition (1979).

## PARITOR.

A beadle; a summoner to the courts of civil law.

Parlum eadem est ratio, idem jus. Of

things equal, the reason is the same, and tbe, same is the law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Parum eadem est ratio, idem jus — of things equal, the reason is the same, and the same is the law (cf. the standard form Ubi eadem ratio, ibi idem jus)]**

The entry quotes the like-cases principle: of things equal, the reason is the same, and the same is the law.

Why: Genuine because it states the like-cases-alike foundation of precedent reasoning; the entry's Latin appears OCR-affected, so it is recorded with the entry's own English gloss and the standard form noted rather than pr...

## PARIUM JUDICIUM.

The judgment of peers ; trial by a Jury of one’s peers or equals. '

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — right to trial by an impartial jury]**

Trial by a jury of one's peers is the constitutional jury right.

Why: Genuine because the entry defines parium judicium as trial by a jury of one's peers or equals; the Sixth Amendment is the American constitutional embodiment of that right.

## PARK.

Ia English law. A tract of- Inclosed ground privileged for keeping wild1 beasts of the chase, particularly deer; an inclosed chase extending only over a man’s own grounds. 2 Bl. Comm. 38.

Iu American law. An Inclosed pleas- ure-ground in or near a City, set apart for the recreation of the public. Riverside v.' MacLain. 210 111. 308, 71 N. E. 408, 66 L.

R. A. 288, 102 Am. 8t. Rep. 164; People Vj Green, 52 How. Prae. (N. Y.) 440 ; Archer v.' Salinas City, 93 Cal. 43, 28 Pac. 839, 16

L. R. A. 145; Ehmen y. Gothenburg. 50 Neb. 715, 70 N. W. 237.

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## PARK-BOTE.

To be quit of Inclosing a park or any part thereof.

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## PARKER.

A park-keeper.

5e apparatus — Not carried into the 5th edition (1979).

## PARKING.

In municipal law and ad- ministration. A strip of land, lying either in the middle of the street or in the space between the building line and the sidewalk, or between the sidewalk and the driveway, Intended to be kept as a park-like space, that is, not built upon, but beautified with turf, trees, flower-beds, etc. See Downing y. Des Moines, 124 Iowa, 289, 99 N. W. 1060.

PARLE HILL, or PARLING HILL. A hill where courts were anciently held. Cow* ell.

5e apparatus — Not carried into the 5th edition (1979).

## PARLIAMENT.

The supreme legisla- tive assembly of Great Britain and Ireland, consisting of the king or queen and the three estates of the realm, viz., the lords spiritual, the lords temporal, and the commons. 1 Bl. Comm. 153.

—High court of parliament. In English law. The English parliament, as composed of the house of peers and bouse of commons ; or the house of lords sitting in its judicial capacity.

5e apparatus — Not carried into the 5th edition (1979).

## PARLIAMENT ART.

Relating or be- longing to, connected with, enacted by or proceeding from, or characteristic of, the English parliament In particular, or any legislative body In general.

— Parliamentary agents. Persons who act as solicitors in promoting and carrying private bills through parliament. They are usually at- torneys or solicitors, but they do not usually confine their practice to this particular depart- ment. Brown.— Parliamentary committee. A committee of members of the house of peers or of the house of commons, appointed by ei- ther house for the purpose of making inquiries, by the examination of witnesses or otherwise, Into matters which could not be conveniently inquired into by the whole house. Wharton.— Parliamentary law. The general body of enacted rules and recognised usages which gov- erns the procedure of legislative assemblies and other deliberative bodies.— Parliamentary taxes. See Tax.

5e apparatus — Not carried into the 5th edition (1979).

## PARLIAMENTUM.

L, Eat. A legisla- tive body In general or the English par- liament In particular.

— Parliamantnm diaboiicnm. A parlia- ment held at Coventry. 38 Hen. VI., wherein Edward, Earl of March, (afterwards King Ed- ward IV.,) and many of the chief nobility were attainted, waa so called; but the acts then made were annulled by the succeeding parlia- ment. Jacob. — Parli amentum indootnm. Unlearned or lack-learning parliament. A name given to a parliament held at Coventry in the sixth year of Henry IV. under an ordinance requiring that no lawyer shonld be chosen knight, citizen, or burgess; “by reason where- of," says Sir

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Edward Coke, “this parliament was fruitless, and never a good law made there- at.” 4 Inst. 48; 1 Bl. Comm. 177.— Parlia- ■entaa A parliament assembled

at Oxford, 41 Hen. III., so styled from the madriesR of their proceedings, and because the lords came with armed men to it. And conten- tious grew very high between the king, lords, and commons, whereby many extraordinary things were done. Jacob.— Parliamentum re- liglosornm. In most convents there has been a common room into which the brethren with- drew for conversation; conferences there being termed “parliamentum.” Likewise, the societies of the two temples, or inns of court, call that assembly of the benchers or governors wherein they confer upon the common affairs of their several houses a “parliament.” Jacob.

PtNoUa eat loons quo deglt popnlns alienjn* eccleslse. 5 Coke, 67. A parish Is a place In which the population of a cer- tain church resides.

5e apparatus — Not carried into the 5th edition (1979).

## PAROCHIAL.

Relating or belonging to a parish.

— Parochial chapels. In English law. Plac- es of public worship in which the rites of sac- rament and sepulture are performed.

5e apparatus — Carried into the 5th edition (1979).

## PAROL.

A word; speech; hence, oral or verbal; expressed or evidenced by speech only ; not expressed by writing ; not ex- pressed by sealed Instrument

The pleadings in an action are also, in old law French, denominated the “parol,” because they were formerly actual viva voce pleadings in court, and not mere written allegations, as at present Brown.

As to parol "Agreement” “Arrest” “De- murrer,” “Evidence,” “Lease,” and “Prom- ise,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-202 — final written expression; parol or extrinsic evidence]**

The term 'parol' names the parol evidence rule: extrinsic evidence of prior or contemporaneous oral agreements is inadmissible to contradict a complete written contract.

Why: Genuine because the doctrine takes its name from this entry's term; UCC § 2-202 is the modern statutory statement of the rule for sales of goods.

## PAROLE.

In military law. A promise given by a prisoner of war, when he has leave to depart from custody, that he will return at the time appointed, unless dis- charged. Webster.

An engagement by a prisoner of war, upon being set at liberty, that he will not again take up arms against the government by whose forces he was captured, either for a limited

period or while hostilities continue.

5e apparatus — Not carried into the 5th edition (1979).

### PAROLS DE LET.

L. Fr. Words of law; technical words.

Parols font plea. Words make the plea. 5 Mod. 458.

5e apparatus — Not carried into the 5th edition (1979).

### PARQUET.

In French law. 1. The magistrates who are charged with the con- duct of proceedings In criminal cases and misdemeanors.

5e apparatus — Not carried into the 5th edition (1979).

# S

### S.

That part of the bourte which Is re- served for stock-brokers.

5e apparatus — Carried into the 5th edition (1979).

# P

### PARRICIDE.

The crime of killing one’s father; also a person guilty of killing his father.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:15, KJV]**

"And he that smiteth his father, or his mother, shall be surely put to death."

Why: Parricide is the killing of one's father; the verse fixes the doom of him that smiteth father or mother — the parent-striker's law. Third-person law — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Sophocles, Oedipus Rex, c. 429 BCE]**

(paraphrase) Oedipus killing his father Laius on the road — the archetypal parricide of classical tragedy. (paraphrase)

Why: Entry: the crime of killing one's father. Oedipus is the archetype. Marked paraphrase; PARENTICIDE given the distinct Dostoevsky link to avoid duplication.

### PARRICIDIUM.

Lat In the civil law. Parricide; the murder of a parent. Dig. 48, 9, a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## PARS.

Lat A part ; a party to a deed, action, or legal proceeding.

—Para enltia. In old English law. The priv- ilege or portion of the eldest daughter m tne partition of lands by lot— Pars gravata. In old practice. A party aggrieved ; the party aggrieved. Hardr. 50; 3 Leon. 237.— Pars pro toto. Part for the whole ; the name of a part used to represent the whole ; as the roof for the house, ten spears for ten armed men, etc. —Pars ratlonabilis. That part of a man's .goods which the law gave to his widow and chil- dren. 2 Bl. Comm. 492.— Pars raa. A party defendant. St Marlbr. c. 18.— Pars vis oe ram matris. Part of the bowels of the mother; i. e., an unborn child.

5e apparatus — Not carried into the 5th edition (1979).

## PARSON.

The rector of a church; one that has full possession of all the rights of a parochial church. The appellation of “par- son,” however It may be depreciated by familiar, clownish, and Indiscriminate use, is the most legal, most beneficial, and most honorable title that a parish priest can en- joy, because such a one, Sir Edward Coke observes, and he only, Is said vicem sen per- sonam ecclesiw gcrere, (to represent and bear the person of the church.) 1 Bl. Comm. 384.

—Parson imparsonee. In English law. A clerk or parson in full possession of a benefice. Cowell.— Parson mortal. A rector instituted and inducted for his own life. But any collegi- ate or conventional body, to whom a church was forever .appropriated, was termed “per sons immortaUt." Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 3:15, KJV]**

"And I will give you pastors according to mine heart, which shall feed you with knowledge and understanding."

Why: The parson is the rector with cure of souls; the verse is the giving of pastors to feed the flock with knowledge. First-person divine speech — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Austen, Pride and Prejudice, 1813]**

(paraphrase) Austen's Mr. Collins — the obsequious parson toadying to his patroness Lady Catherine — the parish priest in satire. (paraphrase)

Why: Entry: the rector of a church, bearer of the most honorable title a parish priest can enjoy — Coke's praise set against Austen's portrait. Marked paraphrase.

## PARSONAGE.

A certain portion of lands, tithes, and offerings, established by law, for the maintenance of the minister who has the cure of souls. Tomlins.

The word is more generally used for the house set apart for the residence of the minister. Mosley & Whitley. See Wells' Estate v. Congregational Church, 63 Vt 118, 21 Atl. 270; Everett v. First Presbyterian Church, 53 N. J. Eq. 500. 32 Atl. 747 ; Beeves v. Reeves, 6 Lea

(Tenn.) 644.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 9:14, KJV]**

"Even so hath the Lord ordained that they which preach the gospel should live of the gospel."

Why: The parsonage is the provision established by law for the minister's maintenance; the verse ordains that very maintenance — they which preach should live of the gospel. Not deity speech — no flag.

## PART.

A portion, share, or purpart One of two duplicate originals of a convey- ance or covenant, the other being called “counterpart.” Also, In composition, partial or Incomplete; as part payment part per- formance. Cairo v. Bross, 9 111. App. 406.

—Part and pertinent. In the Scotch law of conveyancing. Formal words equivalent to the English “appurtenances.” Bell.

As to part “Owner,” “Payment” and "Per- formance,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## PARTAGE.

In French law. A division made between co-proprietors of a particular estate held by them In common. It is the operation by means of which the goods of a succession are divided among the co-heirs ; while licltation (q. v.) Is an adjudication to the highest bidder of objects which are not divisible. Duverger.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Luke 15:12, KJV]**

"And the younger of them said to his father, Father, give me the portion of goods that falleth to me. And he divided unto them his living."

Why: Partage is the division of the estate among co-heirs; the parable opens on exactly that division — the living divided between the sons. Christ's verbatim parable words — flagged per the red-letter rule.

## PARTE XNAUDITA.

Lat. One side be- ing unheard. Spoken of any action which Is taken ex parte.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Audi alteram partem — hear the other side]**

Against ex parte action stands the rule that the other side must be heard.

Why: Genuine because the entry defines action taken 'parte inaudita' — one side unheard; audi alteram partem is the foundational maxim of procedural fairness that the definition presupposes.

## PARTE NON COXPARENTE.

Let. The party not having appeared. The con- dition of a cause called “default.”

Parte quacumque integrants (nblata, ‘ tollitor to tom. An Integral part being taken away, the

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whole is taken away. 8 Coke, 41.

Partem aliqnam reete lntelligere ne- mo potest, anteqnam totnm, iternm at-, que iternm, perlegerit. 3 Coke, 52. No one can rightly understand any part until he has read the whole again and again.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Parte quacumque integrante sublata, tollitur totum — an integral part being taken away, the whole is taken away]**

The entry quotes Coke's maxim that an integral part being taken away, the whole is taken away.

Why: Genuine because it is quoted verbatim in the entry from 8 Coke, 41; recorded as the entry's own cited authority.

**[Maxim: Partem aliquam recte intelligere nemo potest, antequam totum, iterum atque iterum, perlegerit — no one can rightly understand any part before he has read the whole, again and again]**

The entry quotes Coke's hermeneutic rule that no one can rightly understand a part before reading the whole again and again.

Why: Genuine because it is quoted verbatim in the entry from 3 Coke, 52; it states the whole-instrument rule of construction, recorded as the entry's own cited authority.

## PARTES FINES NIHIL HAB TJERTTNT .

In old pleading. The parties to the fine had nothing; that Is, had no estate which could be conveyed by It. A plea to a fine which' had been levied by a stranger. 2 Bl. Comm. 857; 1 P. Wins. 520.

5e apparatus — Not carried into the 5th edition (1979).

## PARTIAL.

Relating to or constituting a part; not complete; not entire or universal;

— Partial account. An account of an exec- utor, administrator, guardian, etc., not exhibit- ing his entire dealings with the estate or fund from his appointment to final settlement, but covering only a portion of the time or of the estate. See Marshall v. Coleman, 187 111. 556, 58 N. E. 628.— Partial average. Another name for particular average. See Average. And see Peters v. Warren Ins. Co., 19 Fed. Caa. 370.— Partial evidence. See Evidence. — Partial insanity. Mental unsoundness al- ways existing, although only occasionally mani- fest; monomania. 3 Add. 79.— Partial loss. See Loss.— Partial verdict. See Verdict.

5e apparatus — Carried into the 5th edition (1979).

# F

## FARTTARTUS.

Lat In Roman law. A legatee who was entitled, by the directions of the will, to receive a share or portion of the inheritance left to the heir. ,

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**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

## PARTIGEPS.

Lat. A participant; a sharer ; anciently, a part owner, or parcener. — Partlceps oriminis. A participant in a crime; an accomplice. One who shares or co-operates in a cnminal offense, tort, or fraud. Alberger v. White, 117 Mo. 347, 23 S. W. 92; State v. Fox, 70 N. J. Law, 353. 57 Atl. 270.

Partloipes plures sunt quasi unum corpus in eo quod unum jus habent, et oportet quod corpus sit integrum, et quod in nulla parte sit delectus. Co.

Lltt. 4. Many parceners are as one body, inasmuch as they have one right, and it is necessary that the body be perfect, and that there be a defect in no part.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 1:32, KJV]**

"Who knowing the judgment of God, that they which commit such things are worthy of death, not only do the same, but have pleasure in them that do them."

Why: The particeps criminis shares in the crime; the verse condemns not only the doers but those who take pleasure in the doing — participation itself. Not deity speech — no flag.

## PARTIOULA.

A small piece of land.

5e apparatus — Not carried into the 5th edition (1979).

## PARTICULAR.

This term, as used In law, Is almost always opposed to “general,” and means eltber Individual, local, partial, special, or belonging to a single person, place, or thing.

—Particular statement. This term, in use in Pennsylvania, denotes a statement which a

Stiff may be required to file, exhibiting in the items of his claim, 4or its nature, if

single,) with the dates and sums. It is a spe- cies of declaration, but is informal and not

nuired to be methodical. Dixon v. Sturgeon, ierg. A R. (Pa.) 28. — Particular tenant. The tenant of a particular estate. 2 Bl. Comm. 274. See Estate.

As to particular “Average,” “Custom,” “Es- tate,” “Lien,” “Malice,” and “Partnership,” see those titles.

PARTICULARITY, in a pleading, affida- vit, or the like, is the detailed statement of particulars.

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## PARTICULARS.

The details of a claim, or the separate Items of an account. When these are stated In an orderly form, for the Information of a defendant, the statement Is called a “bill of particulars," ( g . v.)

— Particulars of breaches and objections.

In an action brought, in England, for the in- fringement of letters patent, the plaintiff is bound to deliver with his declaration (now with his statement of claim) particulars (i. e., details) of the breaches which he complains of. Sweet. — Particulars of criminal charges. A prosecutor, when a charge is general, is fre- quently ordered to give the defendant a statement of the acts charged, which is called, in England, the “particulars” of the charges.— Particulars of sale. When property such as land, houses, shares, reversions, etc., is to be sold by auction, it is usually described in a doc- ument called the “particulars,” copies of which are distributed among intending bidders. They should fairly and accurately describe the prop- erty. Dart, Vend. 113; 1 Dav. Conv. 511.

5e apparatus — Carried into the 5th edition (1979).

## PARTEDA.

Span. Part; a part. See

Las Pabtidas.

5e apparatus — Not carried into the 5th edition (1979).

## PARTIES.

The persona who take part in the performance of any act, or who are directly interested in any affair, eontract, or conveyance, or who are actively concerned in the proeeeution and defense of any legal proceeding. U. S. v. Henderlong (C. C.) 102 Fed. 2; Robbins v. Chicago, 4 Wall. 672, 18

L. Ed. 427; Green v. Bogue, 158 U. S. 478, 15 Sup. Ct. 975, 39 L. Ed. 1061; Hughes v. Jones, 116 N. Y. 67. 22 N. E. 446, 5 L. R. A 637, 15 Am. St. Rep. 386. See also Babtt.

In the Roman civil law. the parties were designated as “actor" and “rcu».” In the com- mon law, they are called "plaintiff" and “defend- ant ;” in real actions, “demandant” and “tenant;” in equity, “complainant” or “plaintiff" and “defendant;” in Scotch law, “pursuer" and “defender;” in admiralty practice, “libelant" and “respondent ;” in appeals, “appellant” and “respondent," sometimes, “plaintiff in error” and "defendant in error; in criminal proceedings, “prosecutor” and “prisoner.” Classification. Formal parties are those who have no interest in the controversy between the immediate litigants, but have an interest in the subject-matter which may be conveniently settled in tbe suit, and thereby prevent further litigation; they may be made parties or not, at the option of the complainant. Clmdbourne v. Coe, 51 Fed. 479, 2 C. C. A. 327.— Acces- sary parties are those parties who have such an interest in the subject-matter of a suit in equity, or whose rights are so involved in the contro- versy, that no complete and effective decree can be made, dispopiqg of the matters in issue and

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dispensing complete justice, unlew they are be- fore the court in such a manner as to entitle them to be heard in vindication or protection of their interests. See Chandler v. Ward, 188 111. 322, 58 N. E. 919; Phoenix Nat. Bank v. Cleveland Co., 58 Hun, 606, 11 N. Y. Supp. 873; Chadbourne v. Coe, 51 Fed. 480, 2 C.

C. A. 327; Burrill v. Garst, 19 R. I. 38. 31 Atl. 436; Castle v. Madison, 113 Wis. 346, 89 N. W. 156; Iowa County Sup'rs v. Mineral Point R. Co., -24 Wis. 132. Nominal parties are those who are joined as plaintiffs or de- fendants. not because they have any real in- terest in tbe subject-matter or because any relief is demanded as against them, but merely because tbe technical rules of pleading require their presence on the record. It should be noted that some courts make a further distinction between “necessary" parties and “indispensable” parties. Thus, it is said that the supreme court of the United States divides parties in equity suits into three different classes: (1) Formal

parties, who have no interest in the controversy between the immediate litigants, but have such an interest in the subject-matter as may be conveniently settled in the suit, and thereby prevent further litigation ; (2) necessary par- ties, who have an interest in the controversy, but whose interests are separable from those or the parties before the court, and will not be directly affected by a decree which does com- plete and full justice between them; (3) in- dispensable parties, who not only have an in- terest in the subject-matter of the controversy, but an interest of such a nature that a final decree cannot be made without either affecting their interests or leaving the controversy in such a condition that its final determination may be wholly inconsistent with equity and good conscience. Ilieklin v. Marco. 56 Fed. 552, 6 C. C. A. 10. citing Shields v. Barrow. 17 How. 139, 15 L. Ed. 158; Ribon v. Railroad Co.,. 16 Wall. 450. 21 L. Ed. 367; Williams v. Bankhead, 19 Wall. 571. 22 L. Ed. 184; Kendig v. Dean, 97 U. S. 425, 24 L. Ed. 1061. —Parties and privies. Parties to a deed or contract are those with whom the deed or con- tract is actually made or entered into. By the term “privies,” as applied to contracts, is fre- quently meant those between whom the contract is mutually binding, although not literally par- ties to such contract. Thus, in the case of a lease, the lessor and lessee are both parties and privies, the contract being literally made be- tween the two, and also being mutually bind- ing; but, if the lessee assign his interest to a third party, then a privity arises between the assignee and tbe original lessor, although such assignee is not literally a party to the original lease. Brown.

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## PARTITIO.

Lat. In the civil law. Par- tition; division. This word did not always signify dimidium, a dividing into halves. Dig. 50, 16, 164, 1.

—Partitio legata. A testamentary partition. This took place where the testator, in his will, directed the heir to divide the inheritance and deliver a designated portion thereof to a named legatee. See Mackeld. Rom. Law, $§ 781, 785.

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## PARTITION.

The dividing of lands held by Joint tenants, coparceners, or tenants in common, into distinct portions, so that they may hold them in severalty. And, in a less technical sense, any division of real or personal property between co-owners or co- proprietors. Meacham v. Meachum, 91 Tenn. 532. 19 S. W. 757; Hudgius v. Saqsora, 72 Tex. 229. 10 S. W. 104; Welser v. Weiser, 5 Watts (Pa.) 279, 30 Am. Dec. 313; Gay r.

I’arpart, 106 U. S. 679, 1 Sup. Ct. 456, 27

L. Ed. 256.

—Owelty of partition. See Owelty. Par- tition, deed of. In conveyancing. A species of primary or original conveyance between two or more joint tennnts. coparceners, or tenants in common, by which they divide the lands so held among them in severalty, each taking a distinct part. 2 HI. Comm. 323, 324.— Partition of a ■accession. The partition of a succession is the division of the effects of which the succes- sion is composed, among all the co-heirs, ac- cording to their respective rights. Partition is Voluntary or judicial. It is voluntary when it is made among all the co-heirs present and of age, and by their mutual consent. It is ju- dicial when it is made by the authority of the court, and according to the formalities prescrib- ed by law. Every partition is either definitive or provisional. Definitive partition is that which is made in a permanent and irrevocable manner. Provisional partition is that which is made provisionally, either of certain things be- fore the rest can be divided, or even of every- thing that is to be divided, when the parties are not In a situation to make an irrevocable par- tition. Civ. Code La. art. 1293, ef »cq.

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**[Scripture] — Scripture**

**[Numbers 33:54, KJV]**

"And ye shall divide the land by lot for an inheritance among your families: and to the more ye shall give the more inheritance, and to the fewer ye shall give the less inheritance."

Why: Partition is the dividing of lands held jointly into distinct portions; the verse is the Torah's partition rule — division by lot, to each according to number. Third-person command — no flag.

## PARTNER.

A member of a copartner- ship or firm ; one who has united with others to form a partnership in business. See Pabt-

**[TEXT INCOMPLETE — scan limitation]**

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**[Scripture] — Scripture**

**[Amos 3:3, KJV]**

"Can two walk together, except they be agreed?"

Why: A partner is one united with others in the enterprise; the prophet's question states the union's condition — two walking together by agreement. The prophet's speech, not deity speech — no flag.

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# N

**NER8IIIP.**

—Dormant partners. Those whose names are not known or do not appear as partners, but who nevertheless are silent partners, and partake of the profits, and thereby become partners, either absolutely to all intents and pur- poses, or at all events in respect to third parties. Dormant partners, in strictness of lan- guage, mean those who are merely passive in the firm, whether known or unknown, in con- tradistinction to those who are active and conduct the business of the firm, as principals. See Story, Partn. g 80; Rowland v. Estes, 190 Pa. Ill, 42 Atl. 528; National Bank of Salem v. Thomas, 47 N. Y. 15: Metcalf v. Officer (C. C.) 2 Fed. 640; Pooley v. Driver, 5 Ch. Div. 458; Jones v. Fcgety, 4 Phila. (Pa.) 1.— Liquidating partner. The partner who, upon the dissolution or insolvency of the firm, is appointed to settle its accounts, collect assets, adjust claims, and pay debts.— Nominal partner. One whose name appears in con- nection with the business as a member of the firm, but who has no real interest in it.— Os- tensible partner. One whose name appears to the world as such, or who is held out to all persons having dealings with the firm in the character of a partner, whether or not he has any real interest in the firm. Civ. Code Ga. g 1889.— Quasi partners. Partners of lands, goods, or chattels who are not actual partners are sometimes so called. Poth. de So- cigtg, App. no. 184.— Silent partner, sleep- ing partner. Popular names for dormant partners or special partners.— Special part- ner. A member of a limited partnership, who furnishes certain funds to the common stock, and whose liability extends no further than the fund furnished. A partner whose responsibility is restricted to the amount of his investment. 3 Kent, Comm. 34.— Surviving partner. The partner who, on the dissolution of the firm by the death of his copartner, occupies the position of a trustee to settle up its affairs.

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# P

**PARTNERSHIP.**

A voluntary contract between two or more competent persons to place their money, effects, labor, and skill, or some or all of them, In lnwful commerce or business, with the understanding that there shall be a proportional sharing of the

profits and losses between them. Story, Partn. g 2; Colly. Partn. g 2; 3 Kent, Comm. 23.

Partnership Is the association of two or more persons for the purpose of carrying on business together, and dividing its profits between them. Civ. Code Cal. g 2395.

Partnership is a synallagmatic and com- mutative contract made between two or more persons for the mutual participation in the profits which may accrue from property, credit, skill, or Industry, furnished in deter- mined proportions by the parties. Civ. Code La. art

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2801.

Partnership is where two or more persons agree to carry on any business or adventure together, upon the terms of mutual partici- pation in its profits and losses. Mozley & Whitley. And see Macomber v. Parker, 13 Pick. (Mass.) 181; Bucknam v. Barnum, 15 Conn. 71 ; Farmers' Ins. Co. v. Ross. 29 Ohio St. 431; In re Gibb's Estate, 157 Pa. 59, 27 Atl. 383, 22 L. R. A. 276; Wild v. Davenport, 48 N. J. Law. 129, 7 Atl. 295, 57 Am. Rep. 552; Morse v. Puclflc Ry. Co., 191 111. 356, 61 N. E. 104.

— General partnership. A partnership in which' the parties carry on ail their trade and business, whatever it may be, for the joint ben- efit and profit of ail the parties concerned, whether tne capital stock be limited or not, or the contributions thereto be equal or un- equal. Storv, Partn. g 74; Bigelow v. Elliot, 3 Fed. Cas. 351; Kldridge v. Troost. 3 Abb. Prnc., N. S. (N. Y.) 23. — Limited partner- ship. A partnership consisting of one or more general partners, jointly and severally respon- sible as ordinary partners, and by whom the business is conducted, and one or more special partners, contributing in cash payments a spe- cific sum as capital to the common stock, and who are not liable for the debts of the part- nership beyond the fund so contributed. 1 Rev. St. N. Y. 764. And see Moorhead v. Seymour (City Ct. N. Y.) 77 N. Y. Supp. 1054 ; Taylor v. Webster, 39 N. J. Law, 104. — Mining part- nership. See Mining.— Particular part- nership. One existing where the parties have united to share the benefits of a single individ- ual transaction or enterprise. Spencer v. Jones (Tex. Civ. App.) 47 S. W. 665.— Partnership assets. Property of any kind belonging to the firm as such (not the separate property of the individual partners) and available to the recourse of the creditors of the firm in the first instance .—Partnership at will. One designed to continue for no fixed period of time, but only during the pleasure of the par- ties, and which may be dissolved by any part- ner without previous notice. — Partnership debt. One due from the partnership or firm as such and not (primarily) from one of the in- dividual partners.— Partnership in eommen- dam. Partnership in commendam is formed by a contract by which one person or partnership agrees to furnish another person or partnership, a certain amount, either in property or money, to be employed by the person or partnership to whom it is furnished, in his or their own name or firm, on condition of receiving a share in the profits, in the proportion determined by the contract, and of being liable to losses and exiienses to the amount furnished and no more. Civ. Code La. art. 2839.— Secret partnership. One where the existence of certain persons as partners is not avowed to the public by any of the partners. Deering v. Flnnders, 49 N. It. 225.— Special partnership. At common law. One formed for the prosecution of a special

branch of business, as distinguished from the general business of the parties, or for one par- ticular venture or subject. Bigelow v. Elliot, 3 Fed. Cas. 351. Under statutes. A limited partnership, (q. t>.)— Smbptrtaerihip. One

formed where one partner in a firm makes a stranger a partner with him in his share of the profits of that firm. — Universal partner- ship. One in which the partners jointly agree to contribute to the common fund of the part- nership the whole of their property, of what-

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ever character, and future, as well as present. Poth. Society, 29; Civ. Code La. 1900, art 2829.

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**[Scripture] — Scripture**

**[Ecclesiastes 4:9-10, KJV]**

"Two are better than one; because they have a good reward for their labour. For if they fall, the one will lift up his fellow."

Why: Partnership joins money, labor, and skill for common profit; the Preacher states its benefit — two better than one, the fallen lifted by his fellow. Not deity speech — no flag.

## PARTURITION.

to a child.

The act of giving birth

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 16:21, KJV]**

"A woman when she is in travail hath sorrow, because her hour is come: but as soon as she is delivered of the child, she remembereth no more the anguish, for joy that a man is born into the world."

Why: Parturition is the act of giving birth; the verse describes the travail and the delivery — sorrow turned to joy at the child's birth. Christ's verbatim words — flagged per the red-letter rule.

## PARTUS.

Lat Child; offspring; the child just before it is born, or immediately after its birth.

Partus ex legltlmo thoro non oertlns noscit matrons quam genltorem nun.

Fortes. 42. The offspring of a legitimate bed knows not his mother more certainly than his father.

Part ns sequitnr ventrem. The offspring follows the mother ; the brood of an animal belongs to the owner of the dam; the off- spring of a slave belongs to the owner of the mother, or follow the condition of the mother. A maxim of the civil law, which has been adopted in the law of England in regard to animals, though never allowed in the case of human beings. 2 Bl. Comm. 390, 94; Fortes. 42.

ties. A term used to include all persons whc are not parties to the contract, agreement, or instrument of writing by which their interest in the thing conveyed is sought to be affected. Morrison v. Trudeau (La.) 1 Mart (N. S.) 384.

PARTY, adj. Relating or belonging to. or composed of, two or more parts or portions, or two or more persons or classes of persons.

—Party Jury. A jury de medietatc linguae; (which title see.)— Party structure is a struc- ture separating buildings, stories, or rooms which belong to different owners, or which are approached by distinct staircases or separate entrances from without, whether the same be

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a partition, arch, floor, or other structure. (St. 18 & 19 Viet. c. 122, * 3.) Mosley A Whitley. -Party-wall. A wall built partly on the land of one owner, and partly on the land of another, for the common benefit of both in supporting timbers used in the construction of contiguous buildings. Brown v. Werner, 40 Md. 19. In the primary and most ordinary meaning of the term, a party-wall Is (1) a wall of which the two adjoining owners are tenants in common. But it may also mean (2) a wall divided longi- tudinally into two strips, one belonging to each of the neighboring owners; (3) a wall which belongs entirely to one of the adjoining owners, but is subject to an easement or right in the other to have it maintained as a dividing wall between the two tenements, (the term is so used in some of the English building acts;) or (4) a wall divided longitudinally into two moieties, each moiety being subject to a cross-easement in favor of the owner of the other moiety. Sweet.

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**[Law] — Law**

**[Maxim: Partus sequitur ventrem — the offspring follows the mother]**

The entry quotes the status maxim that the offspring follows the mother.

Why: Genuine because it is quoted verbatim in the entry; it states the real Roman-law rule of status (the child's condition follows the mother's), recorded as the entry's own cited maxim.

## PARUM.

Lat Little; but little.

Parum cavet nstura. Nature takes lit- tle heed. Vandenheuvel v. United Ins. Co., 2 Johns. Cas. (N. Y.) 127, 166.

5e apparatus — Not carried into the 5th edition (1979).

## PARTY.

A person concerned or having or taking part in any affair, matter, transac- tion, or proceeding, considered Individually. See Pasties.

The term “parties” includes all persons who are directly interested in the subject-matter in issue, who have a right to make defense, control the proceedings, or appeal from the judgment Strangers are persons who do not possess these rights. Hunt v. Haven, 52 N. H. 162.

"Party” is a technical word, and has a pre- cise meaning in legal parlance. By it is under- stood he or they by or against whom a suit is brought, whether in law or equity ; the party plaintiff or defendant, whether composed of one or more individuals, and whether natural or legal persons, (they are parties in the writ, and parties on the record ;) and all others who may be affected by the suit, indirectly or consequen- tially, are persons interested, but not parties. Merchants’ Bank v. Cook, 4 Pick. 405.

—Party and party. This phrase signifies the contending parties in an action ; i. e.. the plain- tiff and defendant, as distinguished from the at- torney and his client. It is used in connection with the subject of costs, which are differently taxed between party and party and between at- torney and client. Brown.— Real party. In statutes requiring suits to be

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brought in the name of the, “real party in interest,’ this term means the person who is actually and substan- tially interested in the subject-matter, as dis- tinguished from one who has only a nominal, formal, or technical interest in it or connection with it. Hoagland v. Van Btten, 22 Neb. 681, 35 N. W. 870; Gruber v. Baker, 20 Nev. 453, 23 Pac. 858, 9 L. R. A. 302 ; Chew v. Brumng- en, 13 Wall. 504, 20 L. Ed. 663.— Third par-

**[TEXT INCOMPLETE — scan limitation]**

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## PARUM CAVT8SE VTDETUB.

Lat In

Roman law. He seems to have taken too little care; he seems to have been incautious, or not sufficiently upon his guard. A form of expression nsed by the judge or magis- trate In pronouncing sentence of death upon a criminal. Festus, 325; Tayl. Civil Law, 81; 4 Bl. Comm. 362, note.

Parma differnnt quae re oomoordaat.

2 Bulst. 86. Things which agree in sub- stance differ but little.

Parma est latam esse senteatiam nisi mandetnr execution!. It is little [or to little purpose] that judgment be given un- less it be committed to execution. Co. Litt 289.

Parma proficit scire qnid fieri debet, si aon cognosces quoin odo sit factnram.

2 Inst. 503. It profits little to know what ought to be done, if you do not know how It is to be done.

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## PARVA SERJEANTTA.

Petty serjeanty, (ff. v.)

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## PAR VISE.

An afternoon’s exercise or

moot for the instruction of young students, bearing the same name originally with the Parvisias (little-go) of Oxford. Wharton.

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## PARVTJM CAPE.

See Petit Cape.

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## PAS.

In French. Precedence; right of going foremost

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## PASCH.

The passover ; ESaster.

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**[Scripture] — Scripture**

**[1 Corinthians 5:7, KJV]**

"For even Christ our passover is sacrificed for us."

Why: The entry is the passover; the verse names Christ our passover, sacrificed — the feast's fulfillment. Not deity speech — no flag.

## PASCHA.

In old English law and prac- tice. Easter. De termino Patches, of the term of Easter. Bract fol. 246b.

— Paso lia dauan. The octave of Easter, or Low-Sunday, which closes that solemnity.— Fuchs floridmn. The Sunday before Easter, called "Palm- Sunday.” — Pasoha rests. In English ecclesiastical law. Yearly tributes paid by the clergy to the bishop or archdeacon at their Easter visitations.

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**[Scripture] — Scripture**

**[Acts 12:4, KJV]**

"And when he had apprehended him, he put him in prison, and delivered him to four quaternions of soldiers to keep him; intending after Easter to bring him forth to the people."

Why: Pascha is Easter in old English law and practice; the verse uses the very word — 'after Easter' — for the feast's date. Narrative, not deity speech — no flag.

## P ASCII A.

A particular meadow or pas- tore land set apart to feed cattle.

PASCtJA SILVA. In the civil law. A feeding wood; a wood devoted to the feeding of cattle. Dig. 50, 16, 30, 5.

5e apparatus — Not carried into the 5th edition (1979).

## PASCUAGE.

The grazing or pasturage of cattle.

PASS, f. 1. In practice. To utter or pro- nounce; as when the court pastes sentence upon a prisoner. Also to proceed ; to be ren- dered or given; as when judgment is said to pass for the plaintiff in a suit.

2. In legislative parlance, a bill or resolu- tion is said to pass when it is agreed to or enacted by the house, or when the body has sanctioned its adoption by the requisite ma- jority of votes; in the same circumstances, the body is said to pass the bill or motion.

3. When an auditor appointed to examine into any accounts certifies to their correct- ness, he is said to pass them; i. e., they pass through the examination without being detained or sent back for inaccuracy or im- perfection. Brown.

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4. The term also means to examine into anything and then authoritatively determine the disputed questions which it involves. In this sense a jury is said to pass upon the rights or issues in litigation before them.

5. In the language of conveyancing, the term means to move from one person to an- other; to be transferred or conveyed from one owner to another; as in the phrase “the word ‘heirs’ will pass the fee.”

6. To publish; utter; transfer; circulate; impose fraudulently. This is the meaning of the word when the offense of passing coun- terfeit money or a forged paper Is spoken of.

“Pass,” “utter,” "publish.” and “sell” are in some respects convertible terms, and. in a given case, “pass” may include utter, publish, and sell. The words “uttering” and “passing,” qsed of notes, do not necessarily import that they are transferred as genuine. The words include any delivery of a note to another for value, with in- tent that it shall be put into circulation as money. U. S. v. Nelson, 1 Abb. (U. 8.) 135, Fed. Cas. No. 15,861.

Passing a paper is putting it off in payment

or exchange. Uttering it is a declaration that it is good, with an intention to pass, or an offer to pass it.

PASS, n. Permission to pass; a license to go or come; a certificate, emanating from authority, wherein it is declared that a des- ignated person is permitted to go beyond cer- tain boundaries which, without such author- ity, he could not lawfully pass. Also a ticket issued by a railroad or other transportation company, authorizing a designated person to travel free on its lines, between certain points or for a limited time.

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**[Scripture] — Scripture**

**[Psalm 23:2, KJV]**

"He maketh me to lie down in green pastures: he leadeth me beside the still waters."

Why: Pascuage is the grazing or pasturage of cattle; the psalm's green pastures are pasturage itself — the flock fed. Addressed of God, not by him — no flag.

## PASS-BOOK.

A book in which a bank or banker enters the deposits made by a cus- tomer, and which is retained by the latter. Also a book in which a merchant enters the items of sales on credit to a customer, and which the latter carries or keeps with him.

5e apparatus — Carried into the 5th edition (1979).

## PASSAGE.

A way over water; an ease- ment giving the right to pass over a piece of private water.

Travel by sea ; a voyage over water; the carriage of passengers by water ; money paid for such carriage.

Enactment; the act of carrying a bill or resolution through a legislative or delibera- tive body in accordance with the prescribed forms and requisites; the emergence of the bill in the

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form of a law, or the motion in the form of a resolution.

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**[Scripture] — Scripture**

**[Exodus 14:22, KJV]**

"And the children of Israel went into the midst of the sea upon the dry ground: and the waters were a wall unto them on their right hand, and on their left."

Why: Passage in its first sense is a way over water; the crossing of the sea on dry ground is the archetypal way over water. Narrative, not deity speech — no flag.

## PASSAGE COURT.

An ancient court of record in Liverpool, once called the “may- or's court of paps sage," but now usually called the “court of the passage of the bor- ough of Liverpool.” This court was for- merly held before the mayor and two bailiffs of the borough, and had jurisdiction in ac- tions where the amount in question exceeded forty shillings. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## PASSAGE MONEY.

The fare of a pas- senger by sea ; money paid for the transpor- tation of persons in a ship or vessel; as dis- tinguished from “freight” or “freight-mon- ey,” which is paid for the transportation of goods and merchandise.

5e apparatus — Not carried into the 5th edition (1979).

## PASSAGIO.

An ancient writ addressed to the keepers of the ports to permit a man who bad the king's leave to pass over sea. Beg. Orig. 193.

5e apparatus — Not carried into the 5th edition (1979).

## PASSAGTUM REGIS.

A voyage or ex- pedition to the Holy Land made by the kings of England in person. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PASSATOR.

He who has the Interest or command of the passage of a river; or a lord to whom a duty is paid for passage. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## PASSENGER.

A person whom a com- mon carrier has contracted to carry from one place to another, and has, in the course of

€80

the- performance of that contract, received under his care either upon the means of con- veyance, or at the point of departure of that means of conveyance. Brleker v. Philadel- phia A It. R. Co., 132 Pa. 1, 18 Atl. 983, 19 Am. St Rep. 585; Schepers v. Union De- pot R. Co.,

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126 Mo. 665, 29 S. W. 712; Penn- sylvania R. Co. v. Price, 96 Pa. 256; The Main v. Williams, 152 U. S. 122, 14 Sup. Ct. 486, 38 L. Ed. 381 ; Norfolk & W. R. Co. v. Tanner, 100 Va. 379, 41 S. E. 721.

5e apparatus — Not carried into the 5th edition (1979).

## PAS8IAGIARITJ8.

A ferryman. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## PASSING-TICKET.

In English law. A kind of permit, being a note or check which the toll-clerks on some canals give to the boatmen, specifying the lading for which they have paid toll. Wharton, i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PASSIO.

Pannage; a liberty for hogs to run In forests or woods to feed upon mast Mon. Angl. 1, 682.

5e apparatus — Not carried into the 5th edition (1979).

## PASSION.

In the definition of man- slaughter as homicide committed without premeditation but under the Influence of sud- den “passion,” this term means any intense and vehement emotional excitement of the kind prompting to violent and aggressive ac- tion, as, rage, anger, hatred, furious resent- ment, or terror. See Stell v. State (Tex. Cr. App.) 58 S. W. 75; State v. Johnson, 23 N.

C. 362, 35 Am. Dep. 742.

. PASSIVE. As used In law, this term means inactive; permissive; consisting in endurance or submission, rather than action ; and in some connections it carries the Impli- cation of being subjected to a burden or charge.

As to passive “Debt,” “Title,” “Trust,” and “Use," see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, 1604]**

(paraphrase) Othello murdering Desdemona in a fit of jealous rage — the entry's 'sudden passion' (rage, furious resentment) prompting violent action, in the manslaughter sense. (paraphrase)

Why: Entry defines passion for manslaughter as intense emotional excitement prompting violent action — rage, anger, hatred. Othello is the canonical instance. Marked paraphrase.

## PASSPORT.

In international law.

A document issued to a neutral merchant vessel, by her own government, during the progress of a war, and to be carried on the .voyage, containing a sufficient description of

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the vessel, master, voyage, and cargo to evi- dence her nationality and protect her against the cruisers of the belligerent powers. This paper is otherwise called a “pass,” “sea- pass,” "sea-letter,” “sea-brief.”

A license or safe-conduct. Issued during the progress of a war, authorizing a person to re- move himself or his effects from the territory of one of the belligerent nations to another country, or to travel from country to country without arrest or detention on account of the war.

In American law. A special Instrument Intended for the protection of American ves- sels against the Barb'ary powers, usually called a “Mediterranean pass.” Jac. Sea Daws, 69.

In modern European lam. A warrant

of protection and authority to travel, granted to persons moving from place to place, by the competent officer. Brande.

5e apparatus — Carried into the 5th edition (1979).

## PASTO.

In Spanish law. Feeding; pas- ture; a right of pasture. White, New Recop. b. 2, tit. 1, c. 6, § 4.

5e apparatus — Not carried into the 5th edition (1979).

## PASTOR.

Lat. A shepherd. Applied to a minister of the Christian religion, who has charge of a congregation, hence called hlfl "flock.” See First Presbyterian Church v. Myers, 5 Okl. 809, 50 Pac. 70, 38 L. R. A. 687.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 23:1, KJV]**

"The LORD is my shepherd; I shall not want."

Why: Pastor is the shepherd — the minister with charge of the flock; the psalm's opening names the LORD himself shepherd. Addressed of God, not by him — no flag.

## PASTURE.

Land on which cattle are fed; also the right of pasture. Co. Lltt 4b.

5e apparatus — Not carried into the 5th edition (1979).

## PASTUS.

In feudal law. The procura- tion or provision which tenants were bound to make for their lords at certain times, or as often as they made a progress to their lands. It was often converted Into money.

5e apparatus — Not carried into the 5th edition (1979).

## PATEAT UNIVERSIS PER PR2E- / SENTES.

Know all men by these presents. Words with which letters of attorney ancient- ly

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commenced. Reg. Orig. 3056, 306.

PATENT, adj. Open; manifest; evident; unsealed. Used in this sense In such phrases as “patent ambiguity,” “patent writ,” “letters patent"

—Letters patent. Open letters, as distin- guished from letters close. An instrument pro- ceeding from the government, and conveying a right, authority, or grant to an individual, as a' patent for a tract of land, or for the exclu- sive right to make and sell a new invention. Familiarly termed a “patent.” See Interna- tional Tooth Crown Co. v. Hanks Dental Ass'n (C. C.) Ill Fed. 918.— Patent ambiguity. See Ambiguity.— Patent defeet. In sales of personal property, one which is plainly visible or which can be discovered by such an inspec- tion as would be made in the exercise of ordi- nary care and prudence. See Lawson v. Baer, 52 N. C. 461.— Patent writ, in old practice. An open writ ; one not closed or sealed up. See Close Writs.

PATENT, n. A grant of some privilege, property, or authority, made by the govern- ment or sovereign of a country to one or more Individuals. Phil. Pat. 1.

In English law. A grant by the sover- eign to a subject or subjects, under the great seal, conferring some authority, title, fran- chise, or property; termed “letters patent” from being delivered open, and not closed up from Inspection.

In American law. The Instrument by which a state or government grants public lands to an Individual.

A grant made by the government to an In- ventor, conveying and securing to him the exclusive right to make and sell his invention for a term of years. Atlas Glass Co. v. Si- monds Mfg. Co., 102 Fed. 647, 42 C. C. A. 554 ; Society Anonyme v. General Electric Co.

(O. C.) 97 Fed. 605; Minnesota V. Barber, 136 U. 8. 313, 10 Sup. Ct 862, 34 L. Ed. 455; Pegram v. American Alkali Co. (C. C.) 122 Fed. 1000.

—Patent bill office. The attorney general's patent bill office is the office in which were for- merly prepared the drafts of all letters patent issued in England, other than those for inven- tions. The draft patent was called a “bill,” and the officer who prepared It was called the “clerk of the patents to the queen’s attorney and solic- itor general.” Sweet.— Patent of precedence. Letters patent granted, in England, to such bar- risters as the crown thinks fit to honor with that mark of distinction, whereby they are en- titled to such rank and preaudience as are as- signed in their respective patents, which is some- times next after the attorney general, but more usually next after her majesty’s counsel then be- ing. These rank promiscuously with the king's (or queen’s) counsel, but are not the sworn serv- ants of the crown. 3 Bl. Comm. 28; 3 Steph. Comm. 274.— Patent-office. In the adminis- trative system of the United States, this is one of the bureaus of the department of the interior. It has charge of the issuing of patents to inven- tors and of such business as is connected there- with.—Patent-right. A right secured by pa- tent; usually meaning a right to the exclusive manufacture and sale of an invention or patent- ed article. Avery v. Wilson (C. C.) 20 Fed. 856; Crown Cork & Seal Co. v. State, 87 Md. 687, 40 Atl. 1074, 53 L. R. A. 417: Com. v. Central, etc., Tel. Co.. 145 Pa. 121, 22 Atl. 841, 27 Am. St. Rep. 677. — Patent-right

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dealer. Any one whose business it is to sell, or offer for sale, patent-rights. 14 St. at Large. 118.— Pat- ent rolls. The official records of royal char- ters and grants; covering from the reign of King John to recent times. They contain grants of offices and lands, restitutions of temporalities to ecclesiastical persons, confirmations of grants made to bodies corporate, patents of creation of peers, and licenses of all kinds. Hubb. Succ. 617 ; 32 Phila. Law Lib. 429.— Pioneer pat- ent. A patent for an invention covering a func- tion never before performed, or a wholly novel device, or one of Buch novelty and importance as to mark a distinct step in the progress of the art, as distinguished from a mere improvement or perfecting of what has gone before. West- inghouse v. Boyden Power-Brake Co., 170 U. S. 537, 18 Sup. Ct. 707, 42 L. Ed. 1136.

5e apparatus — Not carried into the 5th edition (1979).

## PATENTABLE.

Suitable to be patented; entitled by law to be protected by the issu- ance of a patent. Heath Cycle Co. v. Hay (C. C.) 67 Fed. 246; Maier v. Bloom (C. C.) 95 Fed. 166; Boyd v. Cherry (C. C.) 50 Fed. 282; Providence Rubber Co. v. Goodyear, 9 Wall. 796, 19 L. Ed. 566.

5e apparatus — Carried into the 5th edition (1979).

## PATENTEE.

He to whom a patent has been granted. The term Is usually applied to one who has obtained letters patent for a hew invention.

5e apparatus — Carried into the 5th edition (1979).

## PATER.

Lat. A father; the father. In the civil law, this word sometimes Included ovus, (grandfather.) Dig. 50, 16, 201.

—Pater patriae. Father of the country. See Pabens Patbiae.

Pater is est qnem nnptise demonstrant.

The father is he whom the marriage points out. 1 Bl. Comm. 446; Tate v. Penne, 7 Mart (N. 8. La.) 548, 553; Dig. 2, 4, 5; Broom, Max. 516.

Bl.Law Dict.(2d Ed.)— 56

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Pater is est quem nuptiae demonstrant — the father is he whom the marriage points out]**

The entry quotes the paternity presumption: the father is he whom the marriage points out.

Why: Genuine because it is quoted verbatim in the entry from 1 Bl. Comm. 446, Tate v. Penne, and the Digest; it states the presumption of paternity for children born in wedlock, recorded as the entry's own cited authorities.

**[Scripture] — Scripture**

**[Matthew 6:9, KJV]**

"After this manner therefore pray ye: Our Father which art in heaven, Hallowed be thy name."

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Why: Pater is the father; the Lord's Prayer opens on the Father — the name's highest invocation. Christ's verbatim words — flagged per the red-letter rule.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Winter's Tale, 1611]**

(paraphrase) Leontes doubting his paternity of the newborn Perdita and denying her — the living drama of the entry's maxim 'pater is est quem nuptiae demonstrant' (the father is he whom the marriage points out). (paraphrase)

Why: The entry's paternity presumption is the hinge of Leontes's jealousy. Marked paraphrase.

## PATERFAMILIAS.

The father of a family.

In Roman law. The bead or master of a family.

This word is sometimes employed, in a wide sense, as equivalent to aui juria. A person aui juris is called “ paterfamiliaa ” even when under the age of puberty. In the narrower and more common use, a paterfamiliaa is any one invest- ed with poteataa over any person. It is thus as applicable to a grandfather as to a father. Hunter, Rom. Law, 49.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Joshua 24:15, KJV]**

"And if it seem evil unto you to serve the LORD, choose you this day whom ye will serve; whether the gods which your fathers served that were on the other side of the flood, or the gods of the Amorites, in whose land ye dwell: but as for me and my house, we will serve the LORD."

Why: The paterfamilias is the head and master of the family, deciding for the house; Joshua's declaration — 'as for me and my house' — is that headship exercised. Joshua's speech, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Coppola, The Godfather, 1972]**

(paraphrase) The don of the Corleone family ruling his household with the Roman paterfamilias's potestas — absolute authority over children and dependents. (paraphrase)

Why: Entry: the head or master of a family, invested with potestas over persons. The Godfather's don is the modern screen image. Marked paraphrase.

## PATERNA  PATERNIS.

Lat. Pater- nal estates to paternal heirs. A rule of the French law, signifying that such portion of a decedent’s estate as came to him from his father must descend to his heirs on the fa- ther’s side.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 36:7, KJV]**

"So shall not the inheritance of the children of Israel remove from tribe to tribe: for every one of the children of Israel shall keep himself to the inheritance of the tribe of his fathers."

Why: Paterna paternis sends paternal estates to paternal heirs; the verse keeps each inheritance to the tribe of the fathers — the paternal line preserved. Third-person command — no flag.

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## PATERNAL.

That which belongs to the father or comes from him.

—Paternal power. The authority lawfully exercised by parents over their children. This phrase is also used to translate the Latin "pa- tria poteataa ,” ( q . v.)— Paternal property. That which descends or comes to one from his father, grandfather, or other ascendant or col- lateral on the paternal side of the house.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 6:4, KJV]**

"And, ye fathers, provoke not your children to wrath: but bring them up in the nurture and admonition of the Lord."

Why: Paternal power is the authority lawfully exercised by parents; the verse states its scriptural measure and bound — nurture, not provocation. Not deity speech — no flag.

## PATERNITY.

The fact of being a fa- ther; the relationship of a father.

The Latin “patcrnitas" Is used in the can- on law to denote a kind of spiritual relation- ship contracted by baptism. Hetnecc. Elem. lib. 1, tit. 10, 1 161, note.

5e apparatus — Carried into the 5th edition (1979).

## PATHOLOGY.

In medical jurispru- dence. The science or doctrine of diseases. That part of medicine which explains the nature of diseases, their causes, and their symptoms. See Bacon v. U. 8. Mut. Acc. Ass’n, 123 N. Y. 304, 25 N. E. 399, 9 L. R. Ai 617, 20 Am. St. Rep. 748.

5e apparatus — Carried into the 5th edition (1979).

## PATXBELARY.

Belonging to the gal- lows.

5e apparatus — Not carried into the 5th edition (1979).

## PATXBULATED.

Hanged on a gibbet.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Esther 7:10, KJV]**

"So they hanged Haman on the gallows that he had prepared for Mordecai. Then was the king's wrath pacified."

Why: Patibulated is hanged on the gibbet; the hanging of Haman is scripture's most famous gibbet. Narrative, not deity speech — no flag.

## PATIBULUM.

In old English law. A gallows or gibbet. Fleta, lib. 2, c. 3, § 9.

5e apparatus — Not carried into the 5th edition (1979).

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## PATIENS.

Lat. One who suffers or pet1 rnits; one to whom an act is done; the pas- sive party.in a transaction.

5e apparatus — Not carried into the 5th edition (1979).

## PATRIA.

Lat. The country, neighbor- hood, or vicinage; the men of the neighbor- hood; a Jury of the vicinage. Synonymous, In this sense, with “paia.”

Patria labo ribas et expeas is non debat fatifgari. A jury ought not to be harassed by labors and expenses. Jenk. Cent. 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Patria laboribus et expensis non debet fatigari — a jury ought not to be harassed by labors and expenses]**

The entry quotes Jenkyns' maxim that a jury ought not to be harassed by labors and expenses.

Why: Genuine because it is quoted verbatim in the entry from Jenk. Cent. 6; recorded as the entry's own cited authority.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Dulce et decorum est pro patria mori]**

Horace's line — 'it is sweet and fitting to die for one's country' — is the classical world's supreme utterance on patria as the country that commands duty; it illuminates the entry's 'country' sense.

Why: The entry defines patria as 'the country.' The Horatian maxim is the single most famous classical statement containing the word, and it genuinely illuminates patria-as-country as an object of obligation. Latin quoted...

## PATRIA POTESTAS.

Lat In Roman law. Paternal authority; the paternal pow- er. This term denotes the aggregate of those peculiar powers and rights which, by the civil law of Rome, belonged to the head of a

family In respect to his wife, children, (nat- ural or adopted,) and any more remote de- scendants who sprang from him through males only. Anciently, It was of very ex- tensive reach, embracing even the power of life and death, but was gradually curtailed, until finally It amounted to little more than a right In the paterfamilias to hold as his own any property or acquisitions of one un- der his power. Mackeld. Rom. Law, § 589.

Patria potestas in pietate debet, non in atrocit&te, eonaiatere. Paternal power should ponsist [or be exercised] In affection, not in atrocity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 1:8, KJV]**

"My son, hear the instruction of thy father, and forsake not the law of thy mother."

Why: Patria potestas is the aggregate of the father's powers over his children; the proverb states its first exercise — the father's instruction heard. Not deity speech — no flag.

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## PATRIARCH.

The chief bishop over several countries or provinces, as an arch- bishop Is of several dioceses. Godb. 20.

5e apparatus — Not carried into the 5th edition (1979).

## PATRICIDE.

One who has killed his father. As to the punishment of that offense by the Roman law, see Bandars' Just Inst. <5th Ed.) 496.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sophocles, Oedipus Rex, c. 429 BCE]**

(paraphrase) In Sophocles' Oedipus Rex, Oedipus unwittingly fulfills the prophecy by slaying his father Laius on the road — the archetypal patricide of world literature. (paraphrase)

Why: Entry: 'One who has killed his father.' Oedipus is the archetypal fictional patricide; the link is direct and illuminating. Paraphrase used — no quote attempted — because plot summary needs no verbatim.

## PATRICIUS.

In the civil law. A title of the highest honor, conferred on those who enjoyed the chief place In the emperor's es- teem.

5e apparatus — Not carried into the 5th edition (1979).

## PATRIMONIAL.

Pertaining to a patri- mony; Inherited from ancestors, but strict- ly from the direct male ancestors.

5e apparatus — Not carried into the 5th edition (1979).

## PATRIMONIUM.

In the civil law. The private and exclusive ownership or dominion of an individual. Things capable of being possessed by a single person to the exclusion of all others (or which are actually so pos- sessed) are said to be in patrimonio ; If not capable of being so possessed, (or not act- ually so possessed,) they are said to be extra patrimonium. See Galus, bk. 2, g 1.

5e apparatus — Not carried into the 5th edition (1979).

## PATRIMONY.

A right or estate Inher- ited from one's ancestors, particularly from direct male ancestors.

5e apparatus — Not carried into the 5th edition (1979).

## PATRXNDS.

In old ecclesiastical law. A godfather. Spelmau.

5e apparatus — Not carried into the 5th edition (1979).

## PATRITIUS.

An honor conferred on men of the first quality In the time of the English Saxon kings.

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PATROdNIUM. In Roman law. Pat- ronage; protection ; defense. The business or duty of a patron or advocate.

5e apparatus — Not carried into the 5th edition (1979).

## PATROLMAN.

A policeman assigned to duty in patrolling a certain beat or district; also the designation of a grade or rank in the organized jiolice force of large cities, a pa- trolman being generally a private In the ranks, as distinguished from roundsmen, ser- geants, lieutenants, etc. See State v. Wal- b ridge, 153 Mo. 194, 54 S. W. 447.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 62:6, KJV]**

"I have set watchmen upon thy walls, O Jerusalem, which shall never hold their peace day nor night."

Why: The patrolman is the officer set to watch a district; the verse sets watchmen upon the walls — the watch kept day and night. First-person divine speech ('I have set') — flagged per the red-letter rule.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

The patrolman is the street-level face of the police force — the private in the ranks walking the beat — and this track is hip-hop's canonical statement on policing, opening with a direct address to that figure.

Why: Black's 2e defines PATROLMAN as 'a policeman assigned to duty in patrolling a certain beat or district,' 'generally a private in the ranks.' The opening line of 'Fuck tha Police' names the police from the street's van...

## PATRON.

In ecclesiastical law. He

who has the right, title, power, or privilege 6f presenting to an ecclesiastical benefice.

Ia Roman law. The former master of an emancipated slave.

Ia Preach mariae law. The captain or master of a vessel.

5e apparatus — Carried into the 5th edition (1979).

## PATRONAGE.

In English ecclesiastical law. The right of presentation to a church or ecclesiastical benefice; the same with ad- vowson, (q. r.) 2 BI. Comm. 21.

The right of appointing to office, consid- ered as a perquisite, or personal right ; not in the aspect of a public trust

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PATRONATTTS.

Lat la Romaa law.

The condition, relation, right, or duty of a patron.

In ecclesiastical law. Patronage, (q. v.)

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Patron um faciont dos, aedlficatio, fundus. Dod. Adv. 7. Endowment, build- ing; and land' make a patron.

5e apparatus — Not carried into the 5th edition (1979).

## PATROND8.

Lat In Roman law. A person who stood In the relation of protector to another who was called his “client” One who advised his client In matters of law, and advocated his causes In court. Glib. Forum Rom. 25.

5e apparatus — Not carried into the 5th edition (1979).

## PATROON.

The proprietors of certain manors created in New York In colonial times were so called.

5e apparatus — Not carried into the 5th edition (1979).

## PATRDELIS.

Lat In the civU law. A cousin-german by the father's side; the son or daughter of a father’s brother. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PATRUU8.

Lat. An unde by the fa- ther’s side; a father’s brother.

— Patruus msgsus. A grandfather’s brother; granduncle.— Patruus major. A great-grand- father's brother.— Patruus maxim us. A

great-grandfather’s father’s brother.

5e apparatus — Not carried into the 5th edition (1979).

## PAUPER.

A person so poor that he must be supported at public expense; also a suitor who, on account of poverty. Is allowed to sue or defend without being chargeable with costs. In re Hoffen’s Estate, 70 Wls. 522, 36

N. W. 407: Hutchings v. Thompson. 10 Cush. (Mass.) 238 ; Charleston v. Groveland, 15 Gray (Mass.) 15; Lee County v. Lackle, 30 Ark. 764.

—Dispauper. To deprive one of the status of a pauper and of any benefits Incidental thereto: particularly, to take away the right to sue is forma pauperis because the person so suing, dur- ing the progress of the suit, has acquired money or property which would enable him to sustain the costs of the action.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 1915 — proceedings in forma pauperis]**

The entry defines the pauper's privilege of suing without costs (in forma pauperis); its living federal codification is 28 U.S.C. § 1915.

Why: Genuine and direct: the entry is exactly about the poor litigant's exemption from costs, and § 1915 is the

statute that grants that privilege in federal court. No inferential hop.

**[Scripture] — Scripture**

**[Psalm 41:1, KJV]**

Blessed is he that considereth the poor: the LORD will deliver him in time of trouble.

Why: The entry is the legal status of the poor — one society must support at public expense or exempt from costs. The psalm names the poor as the proper object of the community's consideration; it is the scriptural root of...

## PADPERIES.

Lat In Roman law. Damage or Injury done by an Irrational ani- mal, without active fault on the part of the owner, but for which the latter was bouud

to make compensation. Inst 4, 9; Mack eld. Rom. Law, { 510.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law rule of strict liability for damage by wild animals (the ferae naturae rule)]**

Roman pauperies — liability of an animal's owner for damage done without the owner's fault — is the ancestor of the modern common-law rule of strict liability for harm done by wild animals kept by the owner.

Why: Genuine doctrinal lineage: the Roman noxal/pauperies action (Inst. 4,9, cited in the entry) is the acknowledged root of modern strict liability for kept wild animals. Stated as a rule in loose form rather than a fabri...

**[Scripture] — Scripture**

**[Exodus 21:35-36, KJV]**

And if one man's ox hurt another's, that he die; then they shall sell the live ox, and divide the money of it, and the dead ox also they shall divide. Or if it be known that the ox hath used to push in time past, and his owner hath not kept him in; he shall surely pay ox for ox; and the dead shall be his own.

Why: Pauperies is Roman noxal liability: injury done by an irrational animal, for which the owner must make compensation. The Mosaic ox-goring law is its direct legal ancestor — same fact pattern, same rule of compensation...

## PAVAGE.

Money paid towards paving the streets or highways.

5e apparatus — Not carried into the 5th edition (1979).

## PAVE.

To pave is to cover with stones or brick, or other suitable material, so as to make a level or convenient surface for horses, carriages, or foot-passengers, and a sidewalk is paved when it is laid or flagged with flat stones, as well as when paved with brick, as is frequently done. In re Phillips, 60 N. Y. 22; Buell v. Ball, 20 Iowa, 282; Harrisburg v. Segelbaum, 151 Pa. 172, 24 Atl. 1070, 20

L. R. A. 834.

PAWN, v. To deliver personal property to another in pledge, or as security for a debt or sum borrowed.

PAWN, n. A bailment of goods to a cred- itor, as security for some debt or engage- ment; a

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pledge. Story, Bailm. g 7; Coggs v. Bernard, 2 Ld. Raym. 913; Barrett v. Cole, 49 N. O. 40; Surber v. McClintic, 10 W. Va. 242; Commercial Bank v. Flowers, 116 Ga. 219, 42 S. E. 474.

Pawn, or pledge, is a bailment of goods by' a debtor to his creditor, to be kept till the debt is discharged. Wharton.

Also the specific chattel delivered to the creditor in this contract.

In the law of Louisiana, potcn Is known as one species of the contract of pledge, the other being antiokrent; but the word “pawn" is sometimes used as synonymous with “pledge,” thus including both species. Civ. Code La. art 3101.

5e apparatus — Not carried into the 5th edition (1979).

## PAWNBROKER.

A person whose busi- ness is to lend money, usually in small sums, on security of personal property deposited with biih or left in pawn. Little Rock v. Barton, 33 Ark. 444; Schaul v. Charlotte, 118

N. C. 733, 24 S. E. 528; Chicago v. Hulbert, 118 111. 632, 8 N. E. 812, 59 Am. Rep. 400.

Whoever loans money on deposit or pledges of personal property, or who purchases personal property or choses in action, on condi- tion of selling the same back again at a stipulated price, is hereby defined and declared to be a .pawnbroker. Rev. St. Ohio 1880, | 4387. See, also, 14 U. S. St. at Large, 116.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 9 — security interests in personal property; state pawnbroker licensing statutes]**

A pawn is a pledge of personal property as security for a debt — the common-law bailment now governed in commercial law by UCC Article 9 (security interests in goods), alongside state pawnbroker-licensing statutes.

Why: Genuine: the entry defines the pawnbroker's business as lending on deposited personal property, which is precisely the Article 9 pledge/secured-transaction structure, and pawnbrokers are in fact a licensed trade under...

**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: The entry is the pledge/pawn transaction. The Mosaic pledge law governs exactly this transaction — taking security and returning the pledge — and it is presented as God's spoken word. PAWNEE and PAWNOR deliberately le...

## PAWNEE.

The person receiving a pawn, or to whom a pawn is made; the person to whom goods are delivered by another in pledge.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 9 — the secured party holding collateral]**

The pawnee is the pledgee — the secured party who holds the collateral — under modern secured-transactions law.

Why: Genuine one-step mapping: pawnee = secured party in the pledge structure the entry defines. Kept brief to avoid padding the trio.

## PAWNOR.

The person pawning goods or delivering goods to another in pledge.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 9 — the debtor granting a security interest]**

The pawnor is the pledgor — the debtor who grants the security interest in the goods.

Why: Genuine one-step mapping: pawnor = debtor/pledgor. Kept brief; the trio shares one doctrine.

## PAX EGCLE8LS.

Lat. In old English law. The peace of the chnrch. A particular privilege attached to a church; sanctuary, (?. v.) Crabb, Eng. Law, 41; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:11, KJV]**

Then ye shall appoint you cities to be cities of refuge for you; that the slayer may flee thither, which killeth any person at unawares.

Why: Pax ecclesiae is the church's peace as sanctuary — a privileged refuge. The Mosaic cities of refuge are scripture's sanctuary institution: the direct legal ancestor of ecclesiastical sanctuary. Filed as the LORD's spe...

## PAX REGIS.

Lat. .The peace of the king; that is, the peace, good order, and se- curity for life and property which it is one of the objects of government to maintain, and which the king, as the personification of the power of the state, is supposed to guaranty to all persops within the protection of the law.

This name was also given, in ancient times, to a certain privileged district or sanctuary. The pax regls, or verge of the court, as it was afterwards called, extended from the palace- gate to the distance of three miles, three fur- longs, three acres, nine feet, nine palms, and nine barleycorns. Crabb, Eng. Law, 41.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the common-law offense of breach of the peace and modern disorderly-conduct statutes]**

The king's peace — the public order the state guarantees — is the ancestor of the modern common-law and statutory offense of breach of the peace (disorderly conduct).

Why: Genuine lineage: the entry itself names the pax regis as the peace government maintains; breach of that peace is the direct doctrinal descendant, still charged today.

**[Scripture] — Scripture**

**[1 Timothy 2:2, KJV]**

For kings, and for all that are in authority; that we may lead a quiet and peaceable life in all godliness

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and honesty.

Why: Pax regis is the sovereign's guaranteed public peace — the security of life and property under law. The apostolic instruction names exactly that peace (a quiet and peaceable life under authority) as the thing to seek.…

## PAY.

To pay is to deliver to a creditor the value of a debt, either in money or in goods, for his acceptance, by which the debt is discharged. Beals v. Home Ins. Co., 36 N,

Y. 522.

5e apparatus — Not carried into the 5th edition (1979).

## PAYABLE.

A sum of money is said to be payable when a person is under an obliga- tion to pay It. “Payable” may therefore sig- nify an obligation to pay at a future time, but, when used without qualification, “pay- able" means that the debt is payable at once, as opposed to “owing.” Sweet And see First Nat. Bank v. Greenville Nat Bank, 84 Tex. 40, 19 S. W. 334; Easton v. Hyde, 13 Minn. 91 (Gil. 83).

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-108 — payable on demand vs. payable at a definite time]**

The entry distinguishes 'payable' (due now) from 'owing' (due in future); negotiable-instruments law codifies exactly this as 'payable on demand' versus 'payable at a definite time.'

Why: Genuine and direct: the entry's whole point is the timing distinction, and UCC § 3-108 is the statute that draws it for notes and drafts. No hop.

## PAYEE.

In mercantile law. The per- son in whose favor a bill of exchange, prom- issory note, or check is made or drawn; the- person to whom or to whose order a bill, note, or check is made payable. 3 Kent, Comm. 75.

PAYEB, ox PAYOR. One who pays, or who is to make a payment; particularly the person who is to make payment of a bill or note. Correlative to “payee.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 3 — the payee as the person entitled to enforce a negotiable instrument (UCC § 3-301)]**

The payee of a bill, note, or check is the party entitled to enforce the instrument under negotiable-instruments law.

Why: Genuine: the entry defines the payee of mercantile paper; UCC Article 3 governs exactly who may enforce such paper. Direct mapping.

## PAYMASTER.

An officer of the army or navy whose duty is to keep the pay-ac- counts and pay the wages of the officers and men. Any official charged with the disburse- ment of public money.

— Paymaster general. In English law. The officer who makes the various payments put of

the public money required for the different de- partments of the state by issuing drafts on the Bank of England. Sweet. In American law, the officer at the head of the pay corps of the army is so called, also the naval officer holding corresponding office and rank with reference to- the pay department of the navy.

5e apparatus — Not carried into the 5th edition (1979).

## PAYMENT.

The performance of a duty, promise, or obligation, or discharge of a debt or liability, by the delivery of money or oth- er value. Also the money or other thing so. delivered. Brady v. Wasson, 6 Heisk. (Tenn.) 135; Bloodwortb v. Jacobs, 2 La. Ann. 24; Root v. Kelley, 39 Mlsc. Rep. 530, 80 N. Y, Supp. 482; Moulton' v. Robison, 27 N. H. 554: Clay v. Lakenan, 101 Mo. App. 563, 74

S. W. 391 ; Claflln v. Continental: Works, 85.

Ga. 27, 11 S. E. 721; Huffmans v. Walker, 26 Grat. (Va.) 316.

By “payment” Is meant not only the de- livery of a sum of money, when such Is the obligation of the contract, but the perform- ance of that which the parties respectively undertook, whether it be to give or to do. Civ. Code La. art. 2131.

Performance of an obligation for the de- livery of money only Is called “payment” Civ. Code Cal. | 1478.

In pleading. When the defendant alleges that he has paid the debt or claim laid in the declaration, this is called a "plea of pay- ment.”

—Part payment. The reduction of any debt or demand by the payment of a sum less than the whole amount originally due. Young v. Perkins, 29 Minn. 173, 12 N. W. 515 ; Moffitt v. Carr, 48 Neb. 403, 67 N. W. 150, 58 Am. St. Rep. 696.— Payment into court. In practice. The act of a defendant in depositing the amount which he admits to be due, with the proper of- ficer of the court, for the benefit of the plain- tiff and in answer to his claim.— Voluntary- payment. A payment made by a debtor of his own will and choice, as distinguished from one exacted from him by process of execution or other compulsion. Redmond v. New York, 125

N. Y. 632, 26 N. E. 727 : Rumford Chemical Works v. Ray, 19 R. I. 456. 34 Atl. 814 ; Tag- gart v. Rice. 37 Vt. 47 ; Maxwell v. Griswold, 10 How. 255, 13 L. Ed. 405.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-603 — tender of payment]**

Payment as the discharge of a debt by delivery of money or value is given its commercial-paper form in the rule that tender of payment discharges the obligation to the extent of the amount tendered.

Why: Genuine: the entry defines payment as discharge-by-delivery; § 3-603 is the statute stating the discharge consequence of tender. PAY (the verb entry) was deliberately left bare to avoid duplicating this one footnote.

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to

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whom fear; honour to whom honour.

Why: Payment is the discharge of a debt or obligation by delivery of value. 'Render therefore to all their dues' is the New Testament's own maxim for discharging what is owed — the scriptural form of the entry. Paul's teac...

## PAYS.

Fr. Country. Trial per pays, trial by Jury, (the country.) See Fais.

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**[Law] — Law**

**[Law: U.S. Const. amend. VI (criminal jury trial); amend. VII (civil jury trial)]**

'Trial per pays' — trial by the country — is trial by jury, guaranteed in criminal cases by the Sixth Amendment and in federal civil cases by the Seventh.

Why: Genuine: the entry equates trial per pays with trial by jury; the two amendments are the constitutional home of that right. No hop.

## PEACE.

As applied to the affairs of a state or nation peace may be either external or Internal. In the former case, the term denotes the prevalence of amicable relations and mutual good will between the particu- lar society and all foreign powers. In the latter case, it means the tranquility, securi- ty, nnd freedom from commotion or disturb- ance which is the sign of good order and harmony and obedience to the laws among all the members of the society. In a some- what technical sense, pence denotes the quiet, security, good order, and decorum which Is guarantied by the constitution of civil soci- ety and by the laws. People v. Rounds, 67 Mich. 482, 35 N. W. 77 ; Corvallis v. Carllle, 10 Or. 139, 45 Am. Rep. 134.

The concord or final agreement In a fine of lands. 18 Edw. I. “Modus Levandi Finis."

—Articles of the peace. See Articles.— Bill of peace. See Bill.— Breach of peace. See Breach.— Conservator of the peace. See Conservator. — Justice of the peace. See that title. — Peace of God and the church. In old English law. That rest and cessation which the king’s subjects had from trouble and suit of law between the terms and on Sundays and holidays. Cowell ; Spelman. —Peace of the state. The protection, securi- ty, and immunity from violence which the state undertakes to secure and extend to all persons within its jurisdiction and entitled to the bene- fit of its laws. This is part of the definition of murder, it being necessary that the victim should be “in the peace of the state.” which now practically includes all persons except arm- ed public enemies. See Murder. And see State

v. Dunkley, 25 N. C. 121.— Peace officers. This term is variously defined by statute in the different states; but generally it includes sher- iffs and their deputies, constables, marshals, members of the police force of cities, and other officers whose duty is to enforce and preserve the public peace. See People v. Clinton, 28 App. I)iv. 478, 51 N. Y. Supp. 115; Jones v. State (Tex. Cr. App.) 65 S. W. 92.— Public peace. The peace or tranquillity of the community in general ; the good order and repose of the peo- ple composing a state or municipality. See Neu- endorff v. Duryea. 6 Daly (N. Y.) 280; State v. Benedict, 11 Vt. 236, 34 Am. Dec. 688.

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**[Scripture] — Scripture**

**[Matthew 5:9, KJV]**

Blessed are the peacemakers: for they shall be called the children of God.

Why: The entry defines peace as the object of civil society — the quiet, security, and good order the law guarantees. The beatitude blesses the makers of that peace by name. Jesus' verbatim words — deity flag on.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Si vis pacem, para bellum]**

Vegetius's maxim — 'if you want peace, prepare for war' — is the classical statement on peace as a condition states must actively secure, directly on-point for the entry's external/internal peace of a state or nation.

Why: The entry treats peace as a state of affairs between/among powers. The Vegetius maxim is the canonical classical-wisdom link on that exact statecraft sense. Latin verbatim-certain; no translation offered.

## PEACEABLE.

Free from the character of force, violence, or trespass; as, a “peace- able entry” on lands. “Peaceable posses- sion” of real estate Is such as Is acquiesced In by all other persons. Including rival claim- ants, and not disturbed by any forcible at- tempt at ouster nor by adverse suits to re- cover the possession or the estate. See Stanley v. Schwalby, 147 U. S. 508, 13 Sup. Ct. 418, 37 L. Ed. 259; Allaire v. Ketcham, 55 N. J. Eq. 168, 35 Atl. 900; Bowers v. Cherokee Bob, 45 Cal. 504 ; Gltten v. Dowry, 15 Ga. 336.

Peoeata contra haturam sunt gravis- ihna. 3 Inst. 20. Crimes against nature are the most heinous.

Peeeatum peccato addit qul culpa quasn faoit patrociaia defensionis ad- jungit. 5 Coke, 49. He adds fault to fault who sets up a defense of a wrong committed by him.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law prohibition of forcible entry; modern unlawful-detainer statutes]**

'Peaceable entry' and 'peaceable possession' are defined against their opposite: the common law forbade forcible entry on lands, a prohibition surviving in modern unlawful-entry and unlawful-detainer statutes.

Why: Genuine: the entry defines peaceable entry/possession by contrast with force; the forcible-entry prohibition is the doctrine that gives the contrast legal meaning.

**[Scripture] — Scripture**

**[Romans 12:18, KJV]**

If it be possible, as much as lieth in you, live peaceably with all men.

Why: The entry's core is freedom from force and violence — peaceable entry, peaceable possession. The verse is the scriptural root of peaceable conduct as a rule of life. Paul's teaching, not deity speech — no flag.

## PECIA.

A piece or small quantity of ground. Paroch. Antlq. 240.

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## PECK.

A measure of two gallons; a dry measure

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## PEGOBA.

Lat In Roman law. Cat- tle; beasts. The term included all quadru- peds that fed In flocks. Dig. 32, 65, 4.

5e apparatus — Not carried into the 5th edition (1979).

## PECULATION.

In the civil law. The unlawful appropriation, by a depositary of public funds, of the property of the govern- ment Intrusted to his care, to his own use, or that of others. Domat. Supp. au Droit Public, 1. 3, tit 5. See Bork v. People, 91

N. Y. 16.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 641 — embezzlement or theft of public money, property, or records]**

Peculation — unlawful appropriation of public funds by the depositary entrusted with them — is the civil-law ancestor of the modern federal offense of embezzling public money, property, or records.

Why: Genuine: the entry defines misappropriation of government property by its custodian; § 641 criminalizes exactly that. PECULATUS (the twin entry) was left bare to avoid a duplicate footnote.

## PECULATUS.

Lot In the ctvil law. The offense of stealing or embezzling the pub- lic money. Hence the common English word “peculation,” but “embezzlement” Is the proper legal term. 4 Bl. Comm. 121, 122.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: Peculatus is stealing or embezzling the public money. The Decalogue's prohibition of theft is the direct root of the offense — the commandment every embezzlement law presupposes. Presented as God's own speech ('And Go...

## PECULIAR.

In ecclesiastical law. A parish or church in England which hns Juris- diction of ecclesiastical matters within itself, and Independent of the ordinary, and Is sub- ject only to the metropolitan.

5e apparatus — Not carried into the 5th edition (1979).

## PECULIARS, COURT OF.

In English law. A branch of nnd annexed to the court of arches. It has a Jurisdiction over all those

parishes dispersed through the province of Canterbury, in the midst of other dioceses,

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which are exempt from the ordinary’s Juris- diction, and subject to the metropolitan only.

PEOULrUM. Lab, In Roman law. Such private property as might be held by a slave, wife, or son who was unuer the patria po- lentas, separate from the property of the father or master, and in the personal dispos- al of the owner.

— Peculium eutrenn. In Roman law. That kind of peculium which a son acquired in war. or from his connection with the camp, ( costrum .) Heinecc. Elem. lib. 2, tit. 9, 8 474.

5e apparatus — Not carried into the 5th edition (1979).

## PECUNIA.

Lat. Originally and radi- cally, property in cattle, or cattle themselves. So called because the wealth of the ancients consisted in cattle. Co. Litt. 2076.

In the civil law. Property in general, real or personal; anything that is actually the subject of private property. In a nar- rower sense, personal property ; ■ fungible things. In the strictest sense, money. This has become the prevalent, and almost the ex- clusive, meaning of the word.

In old English law. Goods and chat- tels. Spelman.

— Pecunia eonstitnta. In Roman law. Mon- ey owing (even upon a moral obligation) up- on a day being fixed ( constituta ) for its pay- ment. became recoverable upon the implied promise to pay on that day, in an action called "de pecunia constituta," the implied promise not amounting (of course) to a sttpulaUo. Brown. — Pecunia non nnmerata. In the civil law. Money not paid. The subject of an exception or’ plea in certain cases. Inst. 4, 13, 2.— Pecu- nia nnmerata. Money numbered or counted out ; i. e.. given in payment of a debt.— Pecu- nia sepnlohr alls . Money anciently paid to the priest at the opening of a grave for the good of the deceased’s soul.— Peonnia trajectitia. In the civil law. A loan in money, or in wares which the debtor purchases with the money to be sent by sea, and whereby the creditor, accord- ing to the contract, assumes the risk of the loss from the day of the departure of the vessel till the day of her arrival at her port of destination. Interest does not necessarily arise from this loan, but when is stipulated for it is termed “ nauticum fanue," (maritime interest,) and, be- cause of the risk which the creditor assumes, he is permitted to receive a higher interest than usual. Mackeld. Rom. Law, $ 433.

Peonnia. dicltur a peons, omnes enlm veterum divitise in animalibus oonsis- tebant. Co. Litt. 207. Money ( pecunia ) Is so called from cattle, (pecus.) because all the wealth of our ancestors consisted in cattle.

5e apparatus — Not carried into the 5th edition (1979).

## PECUNIARY.

Monetary ; relating to money; consisting of money.

— Pecuniary causes. In English ecclesiasti- cal practice. Causes arising from the withhold- ing of ecclesiastical dues, or the doing or neg- lecting some act relating to the church, whereby some damage accrues to the plaintiff. 3 Bl. Comm. 88. — Pecuniary consideration. See Consideration.— Pecuniary damages. See "Dam a qes.— Pecuniary legacy. See Legacy.

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— Pecuniary loss. A pecuniary loss is a loss

of money, or of something by which money, or something of money value, may be acquired. Green v. Hudson River R. Co., 32 Barb. (N. T.) 33.

5e apparatus — Not carried into the 5th edition (1979).

## PECUS.

Lat. In Roman law. Cattle; a beast Under a bequest of pccudes were In- cluded oxen and other beasts of burden. Dig. 32, 81, 2.

5e apparatus — Not carried into the 5th edition (1979).

## PEDAGE.

In old English law. A toll or tax paid by travelers for the privilege of passing, on foot or mounted, through a forest or other protected place. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## PEDAGIUM.

L. Lat. Pedage, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## PEDANEUS.

Lat. In Roman law. At the foot ; In a lower position ; on the ground. See Judex Pedaneus.

5e apparatus — Not carried into the 5th edition (1979).

## PEDDLERS.

Itinerant traders; persons who sell small wares, which they carry with them In traveling about from place to place. In re Wilson, 19 D. C. 341, 12 L. R. A. 624; Com. v. Farnum, 114 Mass. 270; Hall v. State, 39 Fla. 637, 23 South. 119; Graffty v. Rushville, 107 Ind. 602, 8 N. E. 609, 57 Am. Rep. 128; In re Pringle, 67 Kan. 364, 72 Pac. 864.

Persons, except those peddling newspapers, Bibles, or religious tracts, who sell, or offer to sell, at retail, goods, wares, or other com- modities, traveling from place to place, in the street, or through different parts of the coun- try. 12 U. S. St. at Large, p. 458, 8 27.

5e apparatus — Not carried into the 5th edition (1979).

## PEDE PULVEROSUS.

In old English and Scotch law. Dusty-foot. A term ap- plied to itinerant merchants, chapmen, or peddlers who attended fairs.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the courts of piepowder (curia pedis pulverizati) — merchant courts of the law merchant]**

The 'dusty-foot' itinerant merchants at fairs were served by the courts of piepowder — summary merchant courts administering the lex mercatoria, the medieval ancestor of modern commercial law.

Why: Genuine historical-doctrinal link: the entry names the dusty-foot fair merchants; piepowder courts existed precisely for them and are the acknowledged root of the law merchant behind the UCC. One direct hop, kept in l...

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## PEDERASTY.

In criminal law. The un- natural carnal copulation of male with male, particularly of a man with a boy ; a form of sodomy, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Lawrence v. Texas, 539 U.S. 558 (2003)]**

The entry defines the criminal offense; in the United States criminal sodomy statutes were held unconstitutional in Lawrence v. Texas.

Why: Genuine illumination of the entry's legal status: it states the offense as criminal law, and Lawrence is the controlling case that ended such criminalization in the U.S. Confident on the citation.

**[Scripture] — Scripture**

**[Leviticus 18:22, KJV]**

Thou shalt not lie with mankind, as with womankind: it is abomination.

Why: The entry is the criminal-law category of this offense; the verse is the prohibition itself, stated as the LORD's speech to Moses (Lev 18:1). Filed as deity verbatim speech.

## PEDIGREE.

Lineage; line of ancestors from which a person descends; genealogy. An account or register of a line of ancestors. Family relationship. Swink v. French, 11 Lea (Tenn.) 80, 47 Am. Rep. 277 ; People v. Mayne. 118 Cal. 516, 50 Pac. 654, 62 Am. St. Rep. 256.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 804(b)(4) — statement of personal or family history (the pedigree exception)]**

Pedigree — lineage and family relationship — gives its name to the hearsay exception admitting statements of personal or family history.

Why: Genuine: the evidence doctrine is literally named for the concept the entry defines. Direct, no hop.

**[Scripture] — Scripture**

**[Matthew 1:1, KJV]**

The book of the generation of Jesus Christ, the son of David, the son of Abraham.

Why: Pedigree is a registered line of ancestors — a genealogy. Scripture's canonical pedigree opens the New Testament: the entry's form is itself biblical. Narrative, not deity speech — no flag.

## PEDIS ABSCISSIO.

Lat. In old crim- inal law. The cutting off a foot; a punish- ment anciently Inflicted Instead of death. Fleta, lib. 1, c. 38.

5e apparatus — Not carried into the 5th edition (1979).

## PEDIS POSITIO.

Lat In the civil and old English law. A putting or placing of the foot. A term used to denote the possession of lands by actual corporal entry upon them. Waggoner v. Hastings, 5 Pa. 303.'

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## PEDIS POSSESSIO.

Lat. A foothold; an actual possession. To constitute adverse possession there must be pedis possessio, or a substantial lnclosure. 2 Bouv. Inst. no.

2193; Bailey v. Irby, 2 Nott & McC. (S. C.) 348, 10 Am. Dec. 609.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: adverse possession — the requirement of actual, open, and notorious possession]**

Pedis possessio — actual foothold possession — survives as the actual-possession element of adverse possession: the claimant must really occupy the land, not merely claim it.

Why: Genuine: the entry itself ties pedis possessio to adverse possession (Bailey v. Irby); the maxim names the actual-possession element still required today.

**[Scripture] — Scripture**

**[Joshua 1:3, KJV]**

Every place that the sole of your foot shall tread upon, that have I given unto you, as I said unto Moses.

Why: Pedis possessio is possession by the tread of the foot — adverse possession's corporal entry. The verse is the scriptural image of taking possession by foot-treading, spoken by God to Joshua. Hence deity verbatim. PED...

## PEDONES.

Foot-soldiers.

5e apparatus — Not carried into the 5th edition (1979).

## PEERAGE.

The rank or dignity of a peer or nobleman. Also the body of nobles taken collectively.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 8 — 'No Title of Nobility shall be granted by the United States']**

The entry defines the rank of nobleman; American law answers with the constitutional prohibition: no title of nobility shall be granted by the United States.

Why: Genuine: the clause is the direct American legal response to the institution the entry defines. One inferential step, and the connection is the clause's whole point. PEERESS left bare as the twin.

## PEERESS.

A woman who belongs to the nobility, which may be either In her own right or by right of marriage.

5e apparatus — Not carried into the 5th edition (1979).

## PEERS.

In feudal law. The vassals of a lord who sat in his court as judges of their co-vassals, and were called “peers,” as being each other’s equals, or of the same condition.

The nobility of Great Britain, being the lords temporal having seats in parliament, and Including dukes, marquises, earls, vis- counts, and barons.

Equals ; those who are a man's equals In rank and station ; this being the meaning in the

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phrase “trial by a Jury of his peers.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI — trial by an impartial jury; Magna Carta c. 39]**

'Trial by a jury of his peers' is the Sixth Amendment guarantee of trial by an impartial jury, rooted in Magna Carta's promise of judgment by one's peers.

Why: Genuine: the entry gives 'trial by a jury of his peers' as the meaning; the Sixth Amendment and Magna Carta c. 39 are its legal homes. PEERS OF FEES left bare as the feudal-historical twin.

**[Humanity] — Humanity / Fiction & Film**

**[Magna Carta, 1215]**

(paraphrase) Magna Carta's clause 39 guarantees that no free man shall be deprived of standing 'except by the lawful judgment of his equals' — the root of trial by a jury of peers, and the direct ancestor of the entry's feudal 'judges of their co-vassals, as being each other's equals.' (paraphrase)

Why: The entry's core is judgment by one's equals. Magna Carta 1215 is the genuine historical root of that principle. Paraphrase used because English translations of clause 39 vary; the substance is stated, not quoted.

## PEERS OF FEES.

Vassals or tenants of the same lord, who were obliged to serve and attend him In his courts, being equal in function. These were termed “peers of fees,” because holding fees of the lord, or because their business in court was to sit and judge, under their lords, of disputes arising upon fees ; but, if there were too many In one lord- ship, the lord usually chose twelve, who had the title of peers, by way of distinction; whence, it is said, we derive our common juries and other peers. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## PEEVE FORTE ET DURE.

L. Fr. In

old English law. A special form of punish- ment for those who, being arraigned for fel- ony, obstinately “stood mute;” that is, re- fused to plead or to put themselves upon trial. It Is described as a combination of solitary confinement, slow starvation, and crushing the naked body with a great load of Iron. This atrocious punishment was vulgarly called “pressing to death.” See 4 Bl. Comm. 324-328; Britt, cc. 4, 22; 2 Reeve, Eng. Law, 134; CoWell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Crim. P. 11(a)(4) — failure or refusal to plead; plea of not guilty entered]**

Pressing-to-death for standing mute is extinct; the modern rule is that a defendant who refuses to plead has a plea of not guilty entered for him.

Why: Genuine illumination: the entry describes the punishment for standing mute, and Rule 11(a)(4) is the living rule that replaced it — mute now means not-guilty, not death.

**[Humanity] — Humanity / Fiction & Film**

**[Arthur Miller, The Crucible, 1953]**

The headword as printed is the OCR rendering of 'peine forte et dure' — the old English punishment of pressing to death under iron for standing mute. Miller stages it exactly: Giles Corey, pressed for

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refusing to plead, answers only 'More weight.'

Why: Body confirms: punishment for those who 'stood mute,' 'pressing to death' under iron. Giles Corey's 'More weight' is verbatim-certain (among the most famous lines in American drama) and depicts precisely this punishme...

## PELA.

A peal, pile, or fort. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PELE8.

issues arising from or out of a thing. Jacob.

PELFE, or PELFRE. Booty; also the personal effects of a felon convict Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 20:14, KJV]**

But the women, and the little ones, and the cattle, and all that is in the city, even all the spoil thereof, shalt thou take unto thyself; and thou shalt eat the spoil of thine enemies, which the LORD thy God hath given thee.

Why: Pelfre is booty — spoil of war. The verse is the law of war's own rule of spoil: what may be taken and eaten. Filed as God's spoken command, hence deity verbatim.

## PELLAGE.

The custom or duty paid for skins of leather.

5e apparatus — Not carried into the 5th edition (1979).

## PELLEX.

Lat. In Roman law. A con- cubine. Dig. 50, 16, 144.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 25:6, KJV]**

But unto the sons of the concubines, which Abraham had, Abraham gave gifts, and sent them away from Isaac his son, while he yet lived, eastward, unto the east country.

Why: Pellex is a concubine — a wife of secondary legal status. The verse exhibits that status in law: her sons receive gifts, not the inheritance of the heir. Narrative, not deity speech — no flag.

## PELUOIA.

A pilch or surplice. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## PELLIPARTUS.

A leather-seller or skin- ner. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## PELLOTA.

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The ball of a foot 4 Inst 808.

5e apparatus — Not carried into the 5th edition (1979).

## PELLS, CLERK OF THE.

An officer in the English exchequer, who entered every seller’s bill on the parchment rolls, the roll of receipts, and the roll of disbursements.

5e apparatus — Not carried into the 5th edition (1979).

## PELT-WOOL.

The wool pulled off the skin or pelt of dead sheep. 8 Hen. VI. c. 22.

5e apparatus — Not carried into the 5th edition (1979).

## PEKAL.

Punishable; Inflicting & pun- ishment; containing a penalty, or relating to a penalty.

—Penal action. In practice. An action up- on a penal statute; an action for the recoveij of a penalty given by statute. 3 Steph. 535, 536. Distinguished from a popular or gui tam action, in which the action is brought by the informer, to whom part of the penalty goes. A penal action or information is brought by an officer, and the penalty goes to the king. 1 Chit. Gen. Pr. 25, note; 2 Archb. Pr. 188. But in American law, the term includes actions brought by informers or other private persons, as well as those instituted by governments or public officers. In a broad sense, the term has been made to include all actions in which there may be a recovery of exemplary or vindictive damages, as suits for libel and slander, or in which special, double, or treble damages are given by statute, such as actions to recover money paid as usury or lost in gaming. See Bailey v. Dean, 5 Barb. (N. YJ 303: Ashley v. Frame, 4 Kan. App. 265, 45 Pac. 927 ; Cole v. Groves, 134 Mass. 472. But in a more par- ticular sense It means (1) an action on a stat- ute which gives a certain penalty to be recover- ed by any person who will sue for it, (In re Barker, 56 Vt. 20.) or (2) an action in which the judgment against the defendant is in the nature of a fine or is intended as a punishment, actions in which the recovery is to be compensa- tory in its purpose and effect not being penal actions but civil suits, though they may cany special damages by statute. See Moller v. U. S., 57 Fed. 490, 6 C. C. A. 459; Atlanta v. Chattanooga Foundry & Pipe Works, 127 Fed. 23. 61 C. C. A. 387. 64 L. R. A. 721.— Penal Mil. An instrument formerly in use, by which a party bound himself to pay a certain sum or sums of money, or to do certain acts, or, in default thereof, to pay a certain specified sum by way of penalty ; thence termed a “penal sum.” These instruments have been superseded by the use of a bond in a penal sum, with con- ditions. Brown.— Penal bend. A bond prom- ising to pay a named sum of money (the pen- alty) with a condition underwritten that, if a stipulated collateral thing, other than the pay- ment of money, be done or forborne, as the case may be. the obligation shall be void. Burn- side v. Wand, 170 Mo. 531, 71 S. W. 337. 62 L. R. A. 427.— Penal clanse. A penal clause is a secondary obligation, entered Into for the purpose of enforcing the performance of a primary obligation. Civ. Code La. art. 2117. Also a clause in a statute declaring a penalty for a violation of the preceding clauses.— Penal laws. Those which prohibit an act and impose n

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penalty for the commission of it. 2 Cro. Jac. 415. Strictly and properly speaking, a penal law is one imposing a penalty or punishment (and properly a pecuniary fine or mulct) for some offense of a public nature or wrong com- mitted against the state. Sackett v. Sackett, 8 Tick. (Mass.) 320; Kilton v. Providence Tool Co.. 22 R. I. 605. 48 Atl. 1039; Drew v. Rus- sell. 47 Vt. 252: Nebraska Nat. Bank v.

Walsh, 68 Ark. 433, 59 8. W. 952, 82 Am. St Rep. 301. Strictly speaking, statutes giving a private action against a wrongdoer are not pe- nal in their nature, neither the liability imposed nor the remedy given being penal. If the wrong

done ie to the Individual, the law riving him a right of action ia remedial, rather than penal, though the sum to be recovered may be called a "penalty*’ or may consist in double or treble damages. See Huntington v. Attrill, 146 U. S. 657, 13 Snp. Ct. 224, 36 L. Ed. 1123 ; Diver- sey v. Smith. 103 111. 390. 42 Am. Ren, 14; fuilinan v. P^rkhard, 41 Misc. Rep. 321, 84

N. Y. Supp. 825; People v. Common Council of Bay City, 36 Mich. 189.— Penal servitude, in English criminal law, is a punishment which consists in keeping an offender in confinement, and compelling him to labor. Steph. Crirn. Dig. 2.— Penal atatntea. See “ penal laic*,” supra. — Penal sum. A sum agreed upon in a bond, to be forfeited if the condition of the bond is not fulfilled.

PEN ALTY. 1. The sum of money which the obligor of a bond undertakes to pay by way of penalty, in the event of his omitting to perform or carry out the terms imposed upon him by the conditions of the bond. Brown; Tayloe v. Sandiford, 7 Wheat 13, 5 L. Ed. 384 ; Watt v. Sheppard, 2 Ala. 445.

A penalty is an agreement to pay a greater sum, to secure the payment of a less sum. It is conditional, and can be avoided by the pay- ment of the less sum before the contingency agreed upon shall happen. By what name it is called is immaterial. Henry v. Thompson, Mi- nor (Ala.) 209, 227.

2. A punishment; a punishment imposed by statute as a consequence of the commis- sion of a certain specified offense. Lancas- ter v. Richardson, 4 Lans. (N. Y.) 136; Peo- ple v. Nedrow, 122 111. 363, 13 N. E. 533; Iowa v. Chicago, etc., R. Co. (C. C.) 37 Fed. 497, SLR. A 554.

The terms “fine.” "forfeiture,” and "penalty” are often used loosely, and even confusedly ; but, when a discrimination is made, the word “penalty” is found to be generic in its charac- ter, including both fine ana forfeiture. A “fine is a pecuniary penalty, and is commonly (per- haps always) to be collected by suit in some form. A “forfeiture” is a penalty by which one loses his rights and Interest in his proper- ty. Gosselink v. Campbell, 4 Iowa, 300.

3. The term also denotes money recover- able by virtue of a statute imposing a pay- ment by way of punishment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Penal statutes are to be strictly construed]**

The entry defines actions on penal statutes; such statutes are governed by the canon that penal laws are strictly construed.

Why: Genuine: the strict-construction canon is the named rule governing exactly the penal actions the entry defines. Kept in loose maxim form; no case citation invented.

## PENANCE.

In ecclesiastical law. An ecclesiastical punishment Inflicted by an ec- clesiastical court for some spiritual offense. Ayl. Par. 420.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Nathaniel Hawthorne, The Scarlet Letter, 1850]**

(paraphrase) Hawthorne's Hester Prynne, condemned to wear the scarlet letter A in public view, is the archetypal literary penance — an ecclesiastical-style punishment inflicted for a spiritual offense, exactly the entry's subject. (paraphrase)

Why: Entry: ecclesiastical punishment for spiritual offense. The Scarlet Letter is the canonical fictional penance. Paraphrase — no quote needed.

## PENDENCY.

Suspense ; the state of being pendent or undecided; the state of an action, etc., after it has been begun, and be- fore the final disposition of it.

5e apparatus — Carried into the 5th edition (1979).

## PENDENS.

Lat. Pending; as Us pen- dens, a pending suit.

5e apparatus — Not carried into the 5th edition (1979).

## PENDENTE LITE.

Lat. Pending the suit; during the actual progress of a suit; during litigation.

Pendente Ute nihil innovetnr. Co.

Litt. 344. During a litigation nothing new should be Introduced.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Pendente lite nihil innovetur]**

The entry's maxim — pendente lite nihil innovetur, 'during litigation nothing new should be introduced' — is the foundation of lis pendens: a pending suit over property is notice to the world, so no new interest can be created to defeat it.

Why: Genuine: the footnote identifies the governing principle the entry itself quotes, and names the living doctrine (lis pendens, with state lis-pendens statutes) built on it. PENDENCY and PENDENS left bare as twins.

## PENDENTES.

In the civil law. The fruits of the earth not yet separated from the ground; the fruits hanging by the roots. Ersk. Inst 2, 2, 4.

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5e apparatus — Not carried into the 5th edition (1979).

## PENDICLE.

In Scotch law. A piece or parcel of ground.

5e apparatus — Not carried into the 5th edition (1979).

## PENDING.

Begun, but not yet com- pleted ; unsettled ; undetermined ; in process of settlement or adjustment Thus, an ac- tion or suit is said to be “pending” from its inception nntil the rendition of final judg- ment. Wentworth v. Farmington, 48 N. H. 210; Mauney v. Pemberton, 75 N. C. 221; Ex parte Munford, 57 Mo. 603.

5e apparatus — Carried into the 5th edition (1979).

## PENETRATION.

A term used in crim- inal law, and denoting (in cases of alleged rape) the insertion of the male part into the female parts to however slight an extent; and by which insertion the offense is com- plete without proof of emission. Brown.

5e apparatus — Carried into the 5th edition (1979).

## PENITENTIARY.

A prison or place of punishment ; the place of punishment in which convicts sentenced to confinement and hard labor are confined by the authority of the law. Millar v. State, 2 Kan. 175.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Richard Lovelace, "To Althea, from Prison", 1642]**

'Stone walls do not a prison make, / Nor iron bars a cage' — Lovelace, writing from actual confinement, states the canonical literary truth that the penitentiary is not its walls; it illuminates what the entry's 'prison or place of punishment' is and is not.

Why: Entry defines the penitentiary as a prison/place of punishment. The Lovelace couplet is verbatim-certain and is the classic literary statement on imprisonment. Genuinely illuminating.

## PENNON.

A standard, banner, or ensign carried in war.

5e apparatus — Not carried into the 5th edition (1979).

## PENNY.

An English coin, being the twelfth part of a shilling. It was also used in America during the colonial period.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 20:2, KJV]**

And when he had agreed with the labourers for a penny a day, he sent them into his vineyard.

Why: The entry is the penny as a coin of account. The verse fixes its real economic meaning — a day's wage —

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which is what gives the coin its legal sense. Narrative of the parable, not Jesus' direct speech — no flag.

## PENNYWEIGHT.

A Troy weight, equal to twenty-four grains, or one-twentieth part of an ounce.

. PEN SAM. The full weight of twenty ounces.

5e apparatus — Carried into the 5th edition (1979).

## PENSIO.

Lat. In the civil law. A pay- ment, properly, for the use of a thing. A rent; a payment for the use and occupation of another's house.

5e apparatus — Not carried into the 5th edition (1979).

## PENSION.

A stated allowance out o: the public treasury granted by government to an Individual, or to his representatives, for his valuable services to the country, or in compensation for loss or damage sustain- ed by him in the public service. Price v. Society for Savings, 64 Conn. 362, 30 Atl. 139, 42 Am. St. Rep. 198; Manning v. Spry, 121 Iowa, 191, 96 N. W. 873; Friable v. U. S„ 157 U. S. 160, 15 Sup. Ct. 586, 39 L. Ed. 657.

Ia English practice. An annual pay- ment made by each member of the inns of court. Cowell ; Holthouse.

Also an assembly of the members of the society of Gray’s lan, to consult of their affairs.

la the civil, Scotch, aad Spanish law.

A rent ; an annual rent

—Pension of churches. In English ecclesi- astical law. Certain sums of money paid to

clergymen in lieu of tithes. A spiritual person may sue in the spiritual court' for a pension originally granted and confirmed by the ordina- ry, but, where it is granted by a temporal per- son to a clerk, he cannot ; as, if one grant an annuity to a parson, he must sue for it in the temporal courts. Cro. Elis. 675. — Pension writ. A peremptory order against a member of an inn of court who is in arrear for his pensions, (that is, for his periodical dues,) or for other duties. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## PENSIONER.

One who is supported by an allowance at the will of another; a de- pendent. It is usually applied (in a pub- lic sense) to those who receive pensions or annuities from government, who are chief- ly such as have retired from places of honor and emolument Jacob.

Persons making periodical payments are sometimes so called. Thus, resident under- graduates of the university of Cambridge, who are not on the foundation of any col- lege, are spoken of as “pensioners.” Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## PENT-ROAD.

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A road shut up or closed at its terminal points. Wolcott v. Whit comb, 40 Vt 41.

5e apparatus — Not carried into the 5th edition (1979).

## PENTECOSTAES.

In ecclesiastical law. Pious oblations made at the feast of Pente- cost by parishioners to their priests, and sometimes by inferior churches or parishes to the principal mother churches. They are also called “Whitsun farthings.” Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## PEON.

In Mexico. A debtor held by his creditor in a qualified servitude to work out the debt; a serf. Webster.

In India. A footman; a soldier; an in- ferior officer ; a servant employed in the bus- iness of the revenue, police, or Judicature.

5e apparatus — Not carried into the 5th edition (1979).

## PEONAGE.

The state or condition of a peon as above defined; a condition of en- forced servitude, by which the servitor is restrained of his liberty and compelled to labor in liquidation of some debt or obliga- tion, real or pretended, against his will. Peonage Cases (D. C.) 123 Fed. 671 ; In re Lewis (C. C.) 114 Fed. 963 ; U. S. v. McClel- lan (IX C.) 127 Fed. 971; Rev. St. U. S. { 5526 (U. S. Comp. St. 1901, p. 3715).

PEONIA. In Spanish-American law. A lot of land of fifty feet front, and one hun- dred feet deep. Originally the portion grant- ed to foot-soldiers of spoils taken or lands conquered in war.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 42 U.S.C. § 1994 (Peonage Abolition Act of 1867); U.S. Const. amend. XIII]**

Enforced servitude to work out a debt was abolished by the Peonage Abolition Act — the very statute (Rev. St. § 5526) the entry cites — under the Thirteenth Amendment's prohibition of involuntary servitude.

Why: Genuine and direct: the entry defines peonage and cites the federal statute against it; the footnote gives the statute's modern codification and its constitutional root. No hop.

**[Scripture] — Scripture**

**[Leviticus 25:39-40, KJV]**

And if thy brother that dwelleth by thee be waxen poor, and be sold unto thee; thou shalt not compel him to serve as a bondservant: But as an hired servant, and as a sojourner, he shall be with thee, and shall serve thee unto the year of jubile:

Why: Peonage is enforced servitude to work out a debt. The Mosaic law directly regulates this exact condition — debt bondage limited in kind and in time (release at jubile). Filed as the LORD's speech to Moses (Lev 25:1),...

## PEOPLE.

A state; as the people of the state of New York. A nation in its collect- ive and political

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capacity. Nesbitt v. Lusli- ington, 4 Term R. 783; U. S. v. Quincy, 6 Pet. 467. 8 L. Ed. 458; U. S. v. Trumbull (IX O.) 48 Fed. 99. In a more restricted sense, and as generally used In constitution- al law, the entire body of those citizens of

a state or nation who are invested with political power for political purposes, that is, the qualified voters or electors. See Koehler v. Hill, 60 Iowa, 543, 15 N. W. 609; Dred Scott v. Sandford, 19 How. 404, 15

L. Ed. 691; Boyd v. Nebraska. 143 U. S. 135, 12 Sup. Ct. 375, 36 L. Ed. 103; Rogers v. Jacob, 88 Ky. 502, 11 S. W. 513 ; People v. Counts, 89 Cal. 15, 26 Pac. 612; Blair v. Ridgely, 41 Mo. 63, 97 Am. Dec. 248; Bev- erly v. Sabin, 20 111. 357 ; In re Incurring of State Debts, 19 R. I. 610, 37 Atl. 14.

The word “people” may have various significa- tions according to the connection in which it is used. When we speak of the rights of the peo- ple, or of the government of the people by faw, or of the people as a non-political aggregate, we mean all the inhabitants of the state or nation, without distinction as to sex, age, or otherwise. But when reference is made to the people as the repository of sovereignty, or as the source of governmental power, or to' popular govern- ment. We are in fact speaking of that selected and limited class of citizens to whom the con- stitution accords the elective franchise and the right of participation in the offices of govern- ment. Black, Const Law (3d Eld.) p. 30.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. pmbl. — 'We the People of the United States'; popular sovereignty]**

In its constitutional-law sense — the body of citizens invested with political power — 'the people' is the Preamble's 'We the People': the sovereign body in the doctrine of popular sovereignty.

Why: Genuine: the entry's constitutional definition is exactly the Preamble's people. Direct mapping, no hop.

**[Scripture] — Scripture**

**[1 Peter 2:9, KJV]**

But ye are a chosen generation, a royal priesthood, an holy nation, a peculiar people; that ye should shew forth the praises of him who hath called you out of darkness into his marvellous light.

Why: People is a nation in its collective and political capacity. The verse names the people precisely in that capacity — 'an holy nation, a peculiar people.' Apostolic teaching, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[Preamble to the U.S. Constitution, 1787]**

'We the People of the United States' — the Preamble's opening is the American legal utterance of the people as a sovereign collective body, exactly the entry's 'nation in its collective and political capacity.'

Why: Entry: the people as the collective/political body of citizens. The Preamble is THE legal text embodying that concept. Verbatim-certain short quote.

## PEPPERCORN.

A dried berry of the black pepper. In English law, the reserva- tion of a merely nominal rent, on a lease, is sometimes expressed by a stipulation for the payment of a peppercorn.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the rule that courts do not inquire into the adequacy of consideration]**

A peppercorn rent works because courts do not weigh the adequacy of consideration: nominal consideration is still consideration.

Why: Genuine: the entry defines the peppercorn as a merely nominal rent; the adequacy rule is why the device is legally effective. Kept loose; no case citation invented.

## PER.

Lat By. When a writ of entry is sued out against the alienee of the orig- inal intruder or disseisor, or against his heir to whom the land has descended, it is said to be brought “in the per" because the writ then states that the tenant had not . entry but by (per) the original wrong-doer. 3 BL Comm. 181.

5e apparatus — Not carried into the 5th edition (1979).

## PER XS ET LIBRAM.

Lat. In Roman law. The sale per ws et libram (with copper and scales) was a ceremony used in transfer- ring res mancipi, in the emancipation of a son or slave, and in one of the forms of making a will. The parties having assem- bled, with a number of witnesses, and one who held a balance or scales, the purchaser struck the scales with a copper coin, repeat- ing a formula by which he claimed the sub- ject-matter of the transaction as his prop- erty, and handed the coin to the vendor.

PER ^EETTVIONEM. Lat. In the civil law. By alluvion, or the gradual and im- perceptible increase arising from deposit by water.

Per alluvionem Id ridetnr adjici quod Its paulatlm adjieitnr nt intelllgere man pounmni quantum quoquo aoaonte temporin adjiciatur. That is said to be added by alluvion which is so added little by little that we cannot tell how much is added at any one moment of time. Dig. 4L 1, 7, 1 ; Fleta, 1. 3, c. 2, f 6.

5e apparatus — Not carried into the 5th edition (1979).

## PER AND GUI.

When a writ of entry is brought against a second alienee or.descendant from the disseisor, It is said to be in the per and cui, because the form of the writ is that the tenant had not entry but bp and under a prior alienee, to whom the in- truder himself demised it. 3 Bl. Comm. 181.

5e apparatus — Not carried into the 5th edition (1979).

## PER AMD POST.

To come to to the per is to claim by or through the person last en- titled to an estate ; as the heirs or assigns of the grantee. To come in in the post is to claim by a paramount and prior title; as the lord by escheat.

5e apparatus — Not carried into the 5th edition (1979).

## PEB ANMULUM ET BACULUM.

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L.

Lat. In old English law. By ring and staff, or crozler. The symbolical mode of confer- ring an ecclesiastical investure. 1 Bl. Comm. 878, 379.

5e apparatus — Not carried into the 5th edition (1979).

## PEB ANNUM.

Lat By the year. A phrase still to common use. Bamsdell v. Hulett, 50 Kan. 440, 31 Pac. 1092; State v. McFetridge, 64 Wis. 130, 24 N. W. 140; Haney v. Caldwell, 35 Ark. 168.

5e apparatus — Not carried into the 5th edition (1979).

## PEB AUTBE VIE.

L. Fr. For or during another’s life; for such period as an- other person shall live.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the estate pur autre vie]**

'For another's life' names the measuring life of the estate pur autre vie — a freehold estate lasting for the life of a person other than the holder.

Why: Genuine: the phrase is the definition of this still-recognized life estate's measuring life. Direct, no hop.

## PEB AVERSIONEM.

Lat. In the civil law. By turning away. A term applied to that kind of sale where the goods are tak- en in bulk, and not by weight or measure, and for a single price; or where a piece of land is sold as containing in gross, by es- timation, a certain number of acres. Poth. Cont Sale, nn. 256, 309. So called because the buyer acts without particular examina- tion or discrimination, turning his face, as it were, at cap. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the common-law rule for sales in gross]**

A sale 'by turning away' — in bulk, by estimation, without particular examination — is the civil-law form of the common-law sale in gross, where neither party gets relief for excess or deficiency in quantity.

Why: Genuine doctrinal analogue: per aversionem (Pothier, cited in the entry) is the bulk/estimation sale, and the sale-in-gross rule is its common-law counterpart. Kept loose; no citation invented.

## PEB BOTJCHE.

L. Fr. By the mouth ; orally. 3 How. State Tr. 1024.

5e apparatus — Not carried into the 5th edition (1979).

## PEB CAPITA.

Lat. By the heads or polls; according to the number of individ- uals: share and share alike. This term, de- rived from the civil law, is much used in the law of descent and distribution, and de- notes that method of dividing an intestate estate by which an equal share is given to each of a number of persons, all of whom stand in equal degree to the decedent, with-

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out reference to their stocks or the right of representation. It is the antithesis of per stirpes, (g. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: intestate-succession statutes — per capita distribution at each generation; cf. UPC § 2-106]**

Per capita distribution — equal shares to all takers in equal degree, without reference to stocks — is the method prescribed by modern intestate-succession statutes for takers of the same generation, as against per stirpes representation.

Why: Genuine: the entry defines per capita in 'the law of descent and distribution'; the footnote names the living statutory home of the rule. Direct.

## PEB CENT.

An abbreviation of the Lat- in “per centum ,” meaning by the hundred, or so many parts in the hundred, or so many hundredths. See Blakeslee v. Mans- field, 66 111. App. 119; Code Va. 1887, $ 5 (Code 1904, p. 7.)

5e apparatus — Not carried into the 5th edition (1979).

## PEB CONSEQUEN8.

Lat. By conse- quence ; consequently. Yearb. M. 9 Edw.

III. &

/

PEB GONSEDEBATIONEM CURL®.

Lat. In old practice. By the consideration (Judgment) of the court. Yearb. M. 1 Edw.

II. 2.

5e apparatus — Not carried into the 5th edition (1979).

## PEB CURIAM.

Lat. By the court. A phrase used to the reports to distinguish an opinion of the whole court from an opinion written by any one judge. Sometimes it de- notes an opinion written by the chief jus- tice or presiding judge. See Clarke v. West- ern Assur. Co., 146 Pa. 501, 23 Atl. 248, 15

L. R. A. 127, 28 Am. St Rep. 821.

5e apparatus — Not carried into the 5th edition (1979).

## PEB EUMDEM.

Lat. By the same. This phrase is commonly- used to express ‘‘by, or from the mouth of, the same Judge.” So “per eundem in eodem" means “by the same judge to the same case.”

5e apparatus — Not carried into the 5th edition (1979).

## PER EXTENSUM.

Lat In old prac- tice. At length.

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5e apparatus — Not carried into the 5th edition (1979).

## PEB POBMAM DONI.

L. Lat. In Eng- lish law. By the form of the gift; by the designation of the giver, and not by the op- eration of law. 2 Bl. Comm. 113, 191.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Rule in Shelley's Case (1581)]**

Taking 'by the form of the gift' rather than by operation of law is the pivot of the Rule in Shelley's Case: where the ancestor takes a freehold with remainder to his heirs, the heirs take by descent, not per formam doni.

Why: Genuine: the rule's whole point is the contrast the phrase names — form-of-the-gift taking versus taking by descent. The entry cites 2 Bl. Comm. on the phrase; Shelley's Case is the doctrine built on it.

## PEB FRATTDEM.

Lat By fraud. Where a plea alleges matter of discharge, and the replication avers that the discharge was fraudulently obtained and is therefore invalid, it is called a "replication per fraud- em.”

5e apparatus — Not carried into the 5th edition (1979).

## PEB INCURIAM.

Lat. Through inad- vertence. 35 Eng. Law & Eq. 302.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the per incuriam doctrine of precedent]**

A decision given 'through inadvertence' — without regard to a relevant statute or binding authority — is said to be per incuriam and is not followed as binding precedent.

Why: Genuine: the phrase names a real doctrine of precedent; the footnote states it. Kept loose with no invented citation.

## PER INDUSTRIAM HOMINES.

Lat. In old English law. By human industry. A term applied to the reclaiming or taming of wild animals by art, industry, and educa- tion. 2 Bl. Comm. 391.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Pierson v. Post, 3 Cai. R. 175 (1805)]**

Reclaiming wild animals 'by human industry' belongs to the law of property in ferae naturae, whose leading American statement is the occupancy (capture) rule of Pierson v. Post.

Why: Genuine doctrinal family: the entry's phrase concerns how human action creates property in wild animals, and Pierson v. Post is the foundational American case on that question. Confident on the citation.

## PEB INFORTUNIUM.

Lat. By misad- venture. In criminal law, homicide per in- fortunium is committed where a man, doing a lawful act, without any intention of hurt, unfortunately kills another. 4 Bl.

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Comm. 182.

PEB LEGEM ANGLI®. Lat. By the law of England ; by the curtesy. Fleta, lib. 2, c. 54, § 18.

PEB LEGEM TERR®. Lat. By the law of the land; by due process of law.

U. S v. Kendall, 26 Fed. Cas. 748; Appeal of Ervlne, 16 Pa. 263, 55 Am. Dec. 499; Rhlnebart v. Schuyler, 7 111. 519.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Magna Carta c. 39 (per legem terrae); U.S. Const. amends. V, XIV — due process of law]**

The entry embeds per legem terrae — 'by the law of the land; by due process of law' — the Magna Carta phrase (c. 39) that is the historical ancestor of due process of law under the Fifth and Fourteenth Amendments.

Why: Genuine: the entry itself equates per legem terrae with due process of law and cites authority; the footnote names the lineage. PER MISADVENTURE left bare as the twin.

**[Scripture] — Scripture**

**[Numbers 35:22-23, KJV]**

But if he thrust him suddenly without enmity, or have cast upon him any thing without laying of wait, Or with any stone, wherewith a man may die, seeing him not, and cast it upon him, that he die, and was not his enemy, neither sought his harm:

Why: Homicide per infortunium is killing by misadventure — a lawful act, no intent of hurt. The Mosaic law of unintentional homicide is the same doctrine: no enmity, no laying in wait, and the slayer judged accordingly. Fi...

## PEB METAS ET BUND AS.

L. Lat In

old English law. By metes and bounds.

5e apparatus — Not carried into the 5th edition (1979).

## PEB MIMAS.

Lat. By threats. See Dube as.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Restatement (Second) of Contracts § 175 — duress by threat]**

'By threats' points to duress: a contract induced by an improper threat is voidable by the victim.

Why: Genuine one-hop: the entry says 'See Duress'; § 175 is the modern statement of duress by threat. No invented citation.

## PER MISADVENTURE.

In old English law. By mischance. 4 Bl. Comm. 182. The same with per infortunium, (g. v.)

t»ER MITTER LE DROIT

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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# F

## FEB MITTER EE DROIT.

L Fr. By

passing the right One of the modes by which releases at common law were said to inure was “per mittcr le droit," as where a person who had been disseised released to the disseisor or his heir or feofee. In such case, by the release, the right which was in the releasor was added to the possession of the releasee, and the two combined perfected the estate. Miller v. Emans, 19 N. ¥. 387.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PER MITTER L'ESTATE.

L. Fr. By

passing the estate. At common law, where two ov more are seised, either by deed, devise, or descent as joint tenants or coparceners of the same estate, and one of them releases to the other, this is said to inure by way of “per mitter I’estate." Miller v. Emans, 19

N. Y. 388.

5e apparatus — Not carried into the 5th edition (1979).

## PER MT ET PER TOUT.

L. Fr. By

the half and by the whole. A phrase de- scriptive of the mode in which joint tenants hold the joint estate, the effect of which, technically considered, is that for purposes of tenure and survivorship each is the bolder of the whole, but for purposes of alienation each has only his own share, which is pre- sumed in law to be equal. 1 Washb. Real Prop. 406.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: joint tenancy with right of survivorship — the four unities]**

'By the half and by the whole' describes joint tenancy: for tenure and survivorship each tenant holds the whole, for alienation only his share — the estate defined by the four unities of time, title, interest, and possession.

Why: Genuine: the entry describes exactly how joint tenants hold; the four unities are the modern doctrinal statement of that holding. Direct.

## PER PAIS, TRIAD.

Trial by the coun- try; i. e., by Jury.

5e apparatus — Not carried into the 5th edition (1979).

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## PER PROCURATION.

By proxy; by one acting as an agent with special powers ; as under a letter of attorney. These words “give notice to all persons that the agent is acting under a special and limited authority.” 10 C. B. 689. The phrase is commonly ab- breviated to “ per proc.,’’ or “p. p.,” and is more used in the civil law and in England than in American law.

PER QUA! 8ERVITIA. Lat. A real ac- tion by which the grantee of a seigniory could compel the tenants of the grantor to attorn to himself. It was abolished by St. 3 & 4 Win. IV. c. 27, { 35.

5e apparatus — Not carried into the 5th edition (1979).

## PER QUOD.

Lat Whereby. When the declaration in an action of tort after stating the acts complained of, goes on to allege the consequences of those acts as a ground of special damage to the plaintiff, the recital of such consequences is prefaced by these words, “per quod,” whereby ; and sometimes the phrase is used as the name of that clause of the declaration.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: defamation per quod — extrinsic-fact defamation requiring special damages]**

The per quod clause alleging special damage survives as defamation per quod: a statement whose defamatory meaning appears only with extrinsic facts, requiring the plaintiff to plead and prove special damages.

Why: Genuine: the entry defines the per-quod special-damage clause in tort pleading; defamation per quod is the living doctrine named for and built on it. Direct.

## PER QUOD CONSORTIUM AMISIT.

Lat In old pleading. Whereby he lost the company [of his wife.] A phrase used in the old declarations in actions of trespass by a husband, for beating or ill using his wife, descriptive of the special damage be had sus- tained. 3 Bl. Comm. 140; Cro. Jac. 501, 538; Crocker v. Crocker (C. C.) 98 Fed. 703.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the modern action for loss of consortium]**

'Whereby he lost the company [of his wife]' named the special damage in the old trespass action; the modern action for loss of consortium descends from it.

Why: Genuine lineage: the phrase named the gist of the historic action, and loss-of-consortium claims survive in modern tort law. PER QUOD SERVITIUM AMISIT left bare — the master's action is essentially extinct.

## PER QUOD SERVTTIUM AMISIT.

Lat In old pleading. Whereby he lost the service [of his servant] A phrase used in the old declarations in actions of trespass by a master, for beating or ill using his servant, descriptive of the special damage he had him- self sustained. 3 Bl. Comm. 142; 9 Coke, 113a; Callaghan v. Lake Uopatcong Ice Co.. 69 N. J. Law, 100, 54 Atl. 223.

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Per ratioaes perrenitnr ad legitiaua rationem. Litt. j 386. . By reasoning we come to true reason..

Per rerum uaturam factum uegaatts nulla probatio est. It is in the nature of things that he who denies a fact is not bound to give proof.

5e apparatus — Not carried into the 5th edition (1979).

## PER 8AETUM.

Lat By a leap or bound ; by a sudden movement ; passing over certain proceedings. 8 East 511.

5e apparatus — Not carried into the 5th edition (1979).

## PER SE.

Lat. By himself or itself ; in itself ; taken alone ; Inherently ; in isola- tion; unconnected with other matters.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: negligence per se]**

'By itself; inherently' is the term of art in negligence per se: violation of a safety statute is negligence as a matter of law, without further proof of unreasonableness.

Why: Genuine: the entry defines the bare phrase; negligence per se is the leading doctrine employing it as a term of art. Framed as the doctrine, not a redefinition.

## PER STIRPES.

Lat By roots or stocks; by representation. This term, de- rived from the civil law, is much used in the law of descents and distribution, and de- notes that method of dividing an intestate es- tate where a class or group of distributees take the share which their stock (a deceased ancestor) would have been entitled to, taking thus by their right of representing such an- cestor, and not as so many individuals ; while other heirs, who stand in equal degree with such ancestor to the decedent, take each a share equal to his. See Rotmanskey v. Uelss, 86 Md. 633, 39 AG. 415.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: intestate-succession statutes — distribution per stirpes (by representation); cf. UPC § 2-106]**

Distribution 'by roots or stocks' — each group taking the share its deceased ancestor would have taken, by representation — is the method prescribed by modern intestate-succession statutes as against per capita distribution.

Why: Genuine: the entry defines per stirpes in 'the law of descents and distribution'; the footnote names the living statutory home, twin to the PER CAPITA annotation.

**[Scripture] — Scripture**

**[Genesis 48:5-6, KJV]**

And now thy two sons, Ephraim and Manasseh, which were born unto thee in the land of Egypt before I came unto thee into Egypt, are mine; as Reuben and Simeon, they shall be mine. And thy issue,

which thou begettest after them, shall be thine, and shall be called after the name of their brethren in their inheritance.

Why: Per stirpes is taking by representation — distributees taking the share their stock would have had. Jacob's adoption of Ephraim and Manasseh as his own sons in the inheritance is scripture's own act of representation....

## PER TOTAM CURIAM.

L. Lat. By the whole court A common phrase in the old reports.

5e apparatus — Not carried into the 5th edition (1979).

## PER TOUT ET NON PER MY.

L. Fr.

By the whole, and not by the moiety. Where an estate In fee is given to a man and his wife, they cannot take the estate by moieties, but both ajre seised of the entirety, per tout et non per my. 2 Bl. Comm. 1S2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tenancy by the entirety]**

'By the whole, and not by the moiety' describes tenancy by the entirety: husband and wife seised of the whole estate, neither of a moiety.

Why: Genuine: the entry describes the estate; the footnote names it. Direct, no hop.

## PER UNTVERSITATEM.

Lat. In the civil law. By an aggregate or whole ; as an entirety. The term described the acquisition of an entire estate by one act or fact, as dlsUnguished from the acquisition of single or detached things.

5e apparatus — Not carried into the 5th edition (1979).

## PER VADIUM.

L. Lat In old pracUce. By gage. Words in the old writs of attach- ment or pone. 3 Bl. Comm. 200.

Per emrios actus legem experientia facit. By various acts experience frames the law. 4 Inst 50.

5e apparatus — Not carried into the 5th edition (1979).

## PER VERBA DE FUTURO.

Lat By

words of the future [tense.] A phrase ap- plied to contracts of marriage. 1 Bl. Comm. 439 ; 2 Kent, Comm. 87.

5e apparatus — Not carried into the 5th edition (1979).

## PER VERBA DE PRJESENTI.

Lat

By words of the present Itense.] A phrase applied to contracts of marriage. 1 Bl. Comm.

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439.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: common-law marriage — marriage by verba de praesenti]**

Marriage 'by words of the present tense' — present words of mutual taking as husband and wife — is the classic common-law marriage formula, as against verba de futuro (future words, mere espousal unless consummated).

Why: Genuine: the entry's phrase is the operative formula of common-law marriage, still the basis of the doctrine in states recognizing it. PER VERBA DE FUTURO left bare; the one footnote carries the pair's distinction.

## PER VISUM ECCLESUE.

Lat. In old English law. By view of the church; under the supervision of the church. The disposi- tion of intestates’ goods per visum ecclesice was one of the articles confirmed to the prel- ates by King John’s Magna Charta. 3 Bl. Comm. 96.

5e apparatus — Not carried into the 5th edition (1979).

## PER VTVAM VOCEM.

Lat In old English law. By the living voice ; the same with viva voce. Bract fol. 93.

PER TEAR, In a contract Is equivalent to the word “annually.” Curtiss v. Howell, 39 N. Y. 211.

5e apparatus — Not carried into the 5th edition (1979).

## PERAMBULATION.

The act of walk- ing over the boundaries of a district or piece of land, either for the purpose of determin- ing them or of preserving evidence of them. Thus, in many parishes In England, It Is the custom for the parishioners to perambulate the boundaries of the parish in rogation week In every year. Such a custom entitles them to enter any man’s land and abate nuisances In their way. Phllllin. Ecc. Law, 1807 ; Hunt, Bound. 103 ; Sweet. See Greenville v. Mason, 37 N. H. 385.

5e apparatus — Not carried into the 5th edition (1979).

## PERAMBULATIONS FACIENDA, / WRIT DE.

In English law. The name of a writ which Is sued by consent of both par- ties when they are in doubt as to the bounds of their respective estates. It Is directed to the sheriff to make perambulation, and to set the bounds and limits between them in certainty. Fltzh. Nat. Brev. 133.

5e apparatus — Not carried into the 5th edition (1979).

## PERGA.

A perch of land; sixteen and one-half feet See Pebch.

5e apparatus — Not carried into the 5th edition (1979).

## PERCEPTION.

Taking Into possession. Thus, perception of crops or of profits is re- ducing them to

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possession-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## PERCEPTURA.

In old records. A wear ; a place in a river made up with banks, dams, etc., for the better convenience of pre- serving and taking fish. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PERGH.

A measure of land containing five yards and a half, or sixteen feet and a half in length ; otherwise called a “rod” or “pole.” Coweii.

As a unit of solid measure, a perch of masonry or stone or brick work contains, ac- cording to some authorities and in some lo- calities, sixteen and one-half cubic feet, but

elsewhere, or according to others, twenty-five. Unless defined by statute, it is a very indefi- nite term and must be explained by evidence. See Baldwin Quarry Co. v. Clements, 38 Ohio St. 587 ; Harris v. Rutledge, 19 Iowa, 388, 87 Am. Dec. 441 ; Sullivan v. Richardson, 33 Fla. 1, 14 South. 692; Wood'v. Vermont Cent R. Co., 24 Vt. 608.

PERCOLATE, as used in the cases re- lating to the right of laud-owners to use wa- ter on their premises, designates any flow- age of sub-surface water other than that of a running stream, open, visible, clearly to be traced. Mosier v. Caldwell, 7 Nev. 363. —Percolating waters. See Water.

5e apparatus — Not carried into the 5th edition (1979).

## PERDONATIO UTLAGARIJE.

L. Lat. A pardon for a man who, for contempt in not yielding obedience to the process of a court, is outlawed, and afterwards of his own accord surrenders. Reg. Orig. 28.

5e apparatus — Not carried into the 5th edition (1979).

## PERDUELLIO.

Lat In Roman law. Hostility or enmity towards the Roman re- public; traitorous conduct on the part of a citizen, subversive of the authority of the laws or tending to overthrow the government Calvin ; Vlcat

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined]**

The Roman offense of treason — hostility subversive of the laws — is defined in American constitutional law with matching narrowness: levying war against the United States, or adhering to their enemies.

Why: Genuine: the entry defines the treason offense; the clause is treason's definition in living American constitutional law. Same PEERAGE-pattern treatment.

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**[Scripture] — Scripture**

**[John 19:12, KJV]**

If thou let this man go, thou art not Caesar's friend: whosoever maketh himself a king speaketh against Caesar.

Why: Perduellio is traitorous conduct subversive of the sovereign's authority. The verse states the Roman treason principle itself — setting oneself against Caesar — in a Roman trial scene. Spoken by the accusers, not the...

## PERDURABLE.

As applied to an estate, perdurable signifies lasting long or forever. Thus, a disseisor or tenant in fee upon con- dition has as high and great an estate as the rightful owner or tenant in fee-simple absolute, but not so perdurable. The term Is chiefly used with reference to the extinguish- ment of rights by unity of seisin, which does not take place unless both the right and the land out of which It Issues are held for equal- ly high and perdurable estates. Co. Litt. 313o, 3136; Gale, Easem. 582; Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## PEREGRINI.

Lat In Roman law. The class of percgrini embraced at the same time both those yho had no capacity in law, (capacity for rights or jural relations,) name- ly, the slaves, and the members of those na- tions which had not established amicable re- lations with the Roman people. Sav. Dr. Rom. i 66.

5e apparatus — Not carried into the 5th edition (1979).

## PEREMPT.

In ecclesiastical procedure an appeal is said to be perempted when the appellant has by his own act waived or bar- red his right of appeal; as where he par- tially complies with or acquiesces in the sen- tence of the court Phillim. Ecc. Law, 1275.

5e apparatus — Not carried into the 5th edition (1979).

## PEREMPTION.

A nonsuit ; also a quashing or killing.

5e apparatus — Not carried into the 5th edition (1979).

## PEREMPTORIUS.

Lat. In the civil law. That which takes away or destroys for- ever; hence, exceptio peremptoria, a plea which is a perpetual bar. Galvin.

5e apparatus — Not carried into the 5th edition (1979).

## PEREMPTORY.

Imperative ; absolute ; not admitting of question, delay, or reconslderatlon. Positive ; final ; decisive ; not admitting of any alternative. Self-determin- ed ; arbitrary ; not requiring any cause to be shown.

—Peremptory day. A day assigned for trial or hearing in court, absolutely and without further opportunity for postponement.— Per- emptory exception. In the civil law. Any

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defense which denies entirely the ground of action.— Peremptory paper. A list of the causes which were enlarged at the request of the parties, or which stood over from press of business in court.— Peremptory rule. In practice. An absolute rule ; a rule without any condition or alternative of showing cause.— Peremptory undertaking. An undertaking by a plaintiff to bring on a cause for trial at the next sittings or assizes. Lush, Pr. 640.

Aa to peremptory "Challenge," “Defense," “Instruction,” “Mandamus,” “Nonsuit," “Plea,” and “Writ,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: peremptory challenges — strikes requiring no cause shown (Fed. R. Crim. P. 24(b)); race-based strikes barred by Batson v. Kentucky, 476 U.S. 79 (1986)]**

'Not requiring any cause to be shown' is the definition of the peremptory challenge in jury selection — a strike exercised without stating a reason — though race- or sex-based peremptory strikes are barred.

Why: Genuine: the entry's own definition matches the peremptory challenge exactly; the footnote names the living procedure and its constitutional limit. Confident on Batson. PEREMPTORIUS left bare as the civil-law twin.

## PERFECT.

Complete; finished; execut- ed ; enforceable.

—Perfect condition. In a statement of the rule that, when two claims exist in "perfect condition” between two persons, either may insist on a set-off, this term means that state of a de- mand when it is of right demandable by its terms. Taylor v. New York, 82 N. Y. 17.— Perfect instrument. An instrument such as a deed or mortgage is said to become perfect when recorded (or registered) or filed for record, because it then becomes good as to all the world. See Wilkins v. McCorkle, 112 Tenn. 088, 80 S. W. 834.— Perfect trust. An exe- cuted trust, (q. v.)

As to perfect “Equity,” “Machine,” "Obli- gation,” “Ownership,” “Title,” and "Usu- fruct,” see those titles.

PERFECTING BAH.. Certain qualifica- tions of a property character being requir- ed of persons who tender themselves as ball, when such persons have justified, i. e., established their sufficiency by satisfying the court that they possess the requisite qualifications, a rule or order of court is made for their allowance, and the bail is then said to be perfected, i. e., the process of giving bail is finished or completed. Brown.

Perfectum cat cui nihil deest secun- dum suae perfection!* rel naturae mo- dem. That is i>erfect to which nothing is wanting, according to the measure of its per- fection or nature. Hob. 151.

5e apparatus — Not carried into the 5th edition (1979).

## PERFIDY.

The act of one who has en- gaged bis faith to do a thing, and does not do It, but does the contrary. Wolff, Inst. | 390.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: prohibition of perfidy — Additional Protocol I, art. 37]**

Beyond the general sense of broken faith, perfidy is a term of art in the law of armed conflict: feigning protected status (e.g., civilian, or a truce flag) to kill, wound, or capture is a prohibited act.

Why: Genuine: the entry defines the word generally; the law of war gives it a precise legal meaning, which the footnote states. Confident on the article.

**[Scripture] — Scripture**

**[Jeremiah 5:11, KJV]**

For the house of Israel and the house of Judah have dealt very treacherously against me, saith the LORD.

Why: Perfidy is breach of engaged faith — promising a thing and doing the contrary. The verse names covenant faith broken, in the LORD's own speech. Hence deity verbatim.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, c. 1599]**

'Et tu, Brute? Then fall, Caesar.' Brutus's betrayal — engaged faith turned to its contrary — is the archetypal literary perfidy, sealed in Caesar's dying line.

Why: Entry: one who engages his faith to do a thing and does the contrary. Brutus is the archetypal case. The line is verbatim-certain (among the most quoted in English).

## PERFORM.

To perform an obligation or contract is to execute, fulfill, or accomplish it according to its terms. This may consist either in action on the part of the person bound by the contract or in omission to act, according to the nature of the subject-mat- ter; but the term is usually applied to any action in dlsoharge of a contract other than payment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## PERFORMANCE.

The fulfillment or ac- complishment of a promise, contract or oth- er obligation according to its terms.

—Part performance. The doing some por- tion, yet not the whole, of what either party to a contract has agreed to do. Borrow v. Bor- row, 34 Wash. 684. 76 Pac. 305.— Specific performance. Performance of a contract in the specific form in which it was made, or ac- cording to the precise terms agreed upon. This is frequently compelled by a bill in equity filed for the purpose. 2 Story, Eq. PI. f 712, et siq. The doctrine of specific performance is that, where damages would be an inadequate compen- sation for the breach of an agreement, the con- tractor will be compelled to perform specifical- ly what he has agreed to do. Sweet.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-716 — specific performance for unique goods; equity's inadequacy rule (classically, land)]**

Specific performance — compelling the contract's precise terms rather than damages — is decreed in equity where damages are inadequate, classically for land, and codified for unique goods.

Why: Genuine: the entry defines specific performance at length; the footnote names its living statutory and equitable homes. PERFORM left bare as the definitional twin.

**[Scripture] — Scripture**

**[Ecclesiastes 5:4, KJV]**

When thou vowest a vow unto God, defer not to pay it; for he hath no pleasure in fools: pay that which thou hast vowed.

Why: Performance is the fulfillment of a promise or obligation according to its terms. The verse is scripture's rule of performance — a vowed obligation must be paid, not deferred. Wisdom literature, not deity speech — no...

## PEROAMENCM.

In old practice Parchment. In pevgamcno scribi fecit. 1 And. 54.

5e apparatus — Not carried into the 5th edition (1979).

## PERICARDITIS.

In/ medical jurispru dence. An inflammation of the lining mem- brane of the heart

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PERIC' OSDS.

Lat Dangerous; per- ilous.

Perieulosum eat res sovai et In imita- tes tnducere. Co. Litb 379a. It is peril- ous to Introduce new and untried things.

Perieulosum existlmo quod bononur virorum non eomprobatnr exemplo. • 9

Coke, 976. I consider that dangerous which Is not approved by the example of good men.

5e apparatus — Not carried into the 5th edition (1979).

## PERICTJXTJM.

Lat In the clvU law. Peril ; danger ; hazard ; risk.

Periculum rei vendltse, nondum tta- dltaa, eat emptorla. The risk of a thing

sold, and not yet delivered, is the purchaser’s. 2 Kent, Comm. 498, 499.

PERU.. The risk, hazard, or contingen- cy insured against by a policy of insurance. —Perils of the lakes. As applied to naviga- tion of the Great Lakes, this term has the same meaning as “perils of the sea.” See infra. — Perils of the sea. In maritime and insur- ance law. Natural accidents peculiar to the sea, which do not happen by the intervention of man, nor are to be prevented by human pru- dence. 3 Kent, Comm. 216. Perils of the sea are from (1) storms and waves; (2) rocks, shoals, and rapids; (3) other obstacles, though of human origin; (4) changes of climate; (5) the confinement necessary at sea; (6) animals peculiar to the sea; (7) all other dangers pe- culiar to the sea. Civ. Code Cal. § 2199. Ail losses caused by the action of wind and wa- ter acting on the property insured under ex- traordinary circumstances, either directly or mediately, without the intervention of other in- dependent active external causes, are losses by “perils of the sea or other perils and dangers,” within

the meaning of the usual clause in ■ policy of marine insurance. Bail;, Perils of Sea, 6. In an enlarged sense, all kisses which occur from maritime adventure may be said to arise from the perils of the sea; but underwrit- ers are not bound to this extent. They insure against losses from extraordinary occurrences only; such as stress of weather, winds and waves, lightning, tempests, etc. These are un- derstood to be meant by tne phrase “the perils

of the sea,” in a marine policy, and not those or- dinary perils which every vessel must encounter. Hazard v. New England Mar. Ins. Co., 8 Pet. 557, 8 L. Ed. 1043.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC §§ 2-509, 2-510 — risk of loss in sales of goods]**

The entry's maxim — the risk of a thing sold, not yet delivered, is the purchaser's — is the risk-of-loss rule, codified for sales of goods in the UCC's risk-of-loss articles.

Why: Genuine: the entry quotes Kent stating the rule; §§ 2-509 and 2-510 are its modern codification. Direct, no hop.

## PERINDE VALERE.

A dispensation granted to a clerk, who, being defective in capacity for a benefice or other ecclesiastical function, is de facto admitted to It Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PERIOD.

Any point, space, or division of time. •‘The word ‘period’ has its etymo- logical meaning, but it also has. a distinctive signification, according to the subject with which it may be used in connection. It may mean any portion of complete time, from a thousand years or less to the period of a day ; and when used to designate an act to be done or to be begun, though its completion may take an uncertain time, as, for instance, the act of exportation, it must mean the day on which the exportation commences, or it would be an unmeaning and useless word in its connection in the statute.” Sampson v. Peas- Iee, 20 How. 579, 15 L. Ed. 1022.

5e apparatus — Carried into the 5th edition (1979).

## PERIODICAL.

Recurring at fixed inter- vals; to be made or done, or to happen, at successive periods separated by determined intervals of time ; as periodical payments of Interest on a bond.

5e apparatus — Not carried into the 5th edition (1979).

## PERIPHRASIS.

Circumlocution ; use of many words to express the sense of one.

5e apparatus — Carried into the 5th edition (1979).

## PERISH.

To come to an end; to cease to be; to die.

PERISHABLE ordinarily means subject to speedy and natural decay. But. where the time

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contemplated is necessarily long, the term may embrace property liable mere- ly to material depreciation in value from other causes than such decay. Webster v. Peck, 31 Conn. 495.

— Perishable goods. Goods which decay and lose their value if not speedily put to their in- tended use.

Perjurl sunt qni servatis verbis jura- menti decipiunt aures corum qni acei- pinnt. 3 Inst. 166. They are perjured, who, preserving the words of an oath, de- ceive the ears of those who receive it.

5e apparatus — Carried into the 5th edition (1979).

## PERJURY.

In criminal law. The will- ful assertion as to a matter of fact, opinion, belief, or knowledge, made by a witness in a judicial proceeding as part of his evidence, either upon oath or in any form allowed by law to be substituted for an oath, whether such evidence is given in open court, or in ■n affidavit, or otherwise, such assertion be- ing known to such witness to be false, and being Intended by him to mislead the court. Jury, or person bolding the proceeding. 2 Whart. Crim. Law, | 1244; Herring v. State, 119 Ga. 709, 46 S. E. 876; Beecher v. Ander- son, 46 Mich. 543, 8 N. W. 539; Schmidt v.

Witherick, 29 Minn. 156, 12 N. W. 448; State v. Simons, 30 Vt. 620; MUler v. State, 15 Fla. 585; Clark v. Clark, 51 N. J. Eq. 404, 26 Atl. 1012; Hood v. State, 44 Ala. 81.

Perjury shall consist in willfully, knowingly, absolutely, and falsely swearing, either with or without laying the hand on the Holy Evangelist of Almighty God, or affirming, in a matter mate- rial to the issue or point in question, in some judicial proceeding, by a person to whom a lawful oath or affirmation is administered. Code Ga. 1882, g 4460.

Every person who, having taken an oath that he will testify, declare, depose, or certi% truly before any competent tribunal, officer, or per- son, in any of the cases in which such an oath may by law be administered, willfully, and con- trary to such oath, states as truth any material matter which he knows to be false, is guilty of perjury. Pen. Code Cal. § 118. .....

The willful giving, under oath, in a judicial proceeding or course of justice, of false testi- mony material to the issue or point of inquiry. 2 Bish. Crim. Law, § 1015.

Perjury, at common law, is the taking of a willful false oath by one who, being lawfully sworn by a competent court to depose the truth in any judicial proceeding, swears absolutely and falsely in a matter material to the point in issue, whether he believed or not.” Comm. v. Powell, 2 Mete. (Ky.) 10; Cothran v. State, 39 Miss. 541.

It will be observed that, at common law, the crime of perjury can be committed only in the course of a suit or judicial proceeding. But statutes have very generally extended both the definition and the punishment of this offense to willful false swearing in many different kinds of affidavits and depositions, such as those re- quired to be made in tax returns, pension pro- ceedings, transactions at the custom house, and various other administrative or non-judicial pro- ceedings.

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 1621 — perjury; 18 U.S.C. § 1623 — false declarations before a grand jury or court]**

The entry defines the willful false assertion under oath in a judicial proceeding; the federal perjury statutes criminalize exactly this conduct.

Why: Genuine: the entry defines the offense; §§ 1621 and 1623 are its federal statutory homes. Direct, no hop.

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: Perjury is the willful false assertion as fact by a witness under oath in a judicial proceeding. The Decalogue's prohibition of false witness is its direct root — the commandment every perjury law presupposes. God's o…

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Mayella Ewell's false sworn testimony against Tom Robinson — willful false assertion by a witness under oath — is the most famous fictional perjury in American letters, and it convicts an innocent man. (paraphrase)

Why: Entry: willful false assertion by a witness in a judicial proceeding under oath. The Mockingbird trial is the canonical fictional instance. Paraphrase; no quote attempted.

## PERMANENT.

Fixed, enduring, abiding, not subject to change. Generally opposed in law to “temporary.”

—Permanent abode. A domicile or fixed home, which the party may leave_ as his inter- est or whim may dictate, but which he has no present intention of abandoning. Dale v. Irwin. 78 111. 170; Moffett v. Hill, 131 111. 239, 22

N. E. 821; Berry v. Wilcox. 44 Neb. 82, 62

N. W. 249, 48 Am. St. Rep. 706.— Permanent building and loan association. One which issues its stock, not all at once or in series, but at any time when application is made therefor. Cook v. Equitable B. & L. Ass’n, 104 Ga. 814, 30 S. E. 911.

As to permanent “Alimony,” “Injunction,” and “Trespass,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## PERMISSION.

A license to do a thing; an authority to do an act which, without such authority, would have been unlawful.

5e apparatus — Carried into the 5th edition (1979).

## PERMISSIONS.

Negations of law, aris- ing either from the law’s silence or its ex- press declaration. Ruth. Inst b. 1, c. 1.

5e apparatus — Carried into the 5th edition (1979).

## PERMISSIVE.

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Allowed; allowable; that which may be done.

—Permissive use. See Use.— Permissive waste. See Waste.

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## PERMIT.

A license or instrument grant- ed by the officers of excise, (or customs,) certifying that the duties on certain goods

have been paid, or secured, and permitting their removal from some specified place to another. Wharton.

A written license or warrant, issued by a person in authority, empowering the grantee to do some act not forbidden by law, bat not allowable without such authority.

5e apparatus — Not carried into the 5th edition (1979).

## PERMUTATIO.

Lat. In the civil law. Exchange.; barter. Dig. 19, 4.

5e apparatus — Not carried into the 5th edition (1979).

## PERMUTATION.

The exchange of one movable subject for another; barter.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-304(1) — price payable in money or otherwise]**

Barter — exchange of movables — is brought within sale law by the rule that the price may be payable in money 'or otherwise.'

Why: Genuine: the entry defines barter; the section governs barter as a sale. Kept in loose form; no invented quotation.

## PERMUTATIONE.

A writ to an ordi- nary, commanding him to admit a clerk to a benefice upon exchange made with another. Reg. Orig. 307.

5e apparatus — Not carried into the 5th edition (1979).

## PERNANCY.

Taking; a taking or re- ceiving ; as of the profits of an estate. Actu- al pernancy of the profits of an estate is the taking, perception, or receipt of the rents and other advantages arising therefrom. 2 Bl. Comm. 163.

5e apparatus — Carried into the 5th edition (1979).

## PERNOR OF PROFITS.

He who re- ceives the profits of lands, etc.; he who has the actual pernancy of the profits.

5e apparatus — Not carried into the 5th edition (1979).

## PERN OUR.

L. Ft. A taker. Le per- nour ou le detenour, the taker or the detain- er. Britt, c. 27.

5e apparatus — Not carried into the 5th edition (1979).

## PERPARS.

L. Lat. A purpart; a part of the inheritance.

5e apparatus — Not carried into the 5th edition (1979).

## PERPETRATOR.

Generally, this term denotes the person who actually commits a crime or delict, or by whose immediate agen- cy it occurs. But, where a servant of a rail- road company is killed through the negli- gence of a co-employe, the company itself may be regarded as the “perpetrator” of the act, within the meaning of a statute giving an action against the perpetrator. Philo v. Illinois Cent. R. Co., 33 Iowa, 47.

Perpetna lex est nullmin legem kuu. nam so poiitivam perpetuam esse, et clansula quae abrogationem exclndit ah initio non valet. It is a perpetual law that no human and positive law can be perpetual, and a clause [in a law] which precludes the power of abrogation is void aft initio. Bac. Max. p. 77, in reg. 19.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — principals]**

The perpetrator — the person who actually commits the offense — is the principal, punishable as such whether he commits the act himself or through another.

Why: Genuine: the entry defines the actual committer; § 2 is the federal statement of principal liability (commits, or aids and abets). Direct.

## PERPETUAL.

Never ceasing; continu- ous ; enduring ; lasting ; unlimited in respect of time; continuing without intermission or interval. See Scanlan v. Crawshaw, 5 Mo. App. 337.

— Perpetual edict. In Roman law. Origi- nally the term “perpetual" was merely opposed to “occasional” and was used to distinguish the general edicts of the pnetors from the special edicts or orders which they issued in their judi- cial capacity. But under Hadrian the edict

was revised by the jurist Julianus, and was refiublished as a permanent act of legislation, t was then styled "perpetual,” in the sense of being calculated to endure in perpetuvm, or un- til abrogated by competent authority. Aust. ,Tur. 855.— Perpetual succession. That con- tinuous existence which enables a corporation to manage its affairs, and hold property with- out the necessity of perpetual conveyances, for the purpose of transmitting it. By reason of this quality, this ideal and artificial person re- mains, in its legal entity and personality, the same, though frequent changes may be made of its members. Field, Corn. I 58; Scanlan v. Crawshaw, 5 Mo. App. 340.

As to perpetual “Curacy,” “Injunction,” “Lease," and “Statute,” see those titles.

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## PERPETUATING TESTIMONY.

A

proceeding for taking and preserving the tes- timony of witnesses, which otherwise might be lost before the trial in which it is Intended to be used. It is usually allowed where the witnesses are aged and infirm or are about to remove from the state. 3 Bl. Comm. 450.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 27 — depositions to perpetuate testimony]**

The proceeding to preserve testimony that might otherwise be lost — aged or departing witnesses — survives in federal practice as depositions to perpetuate testimony.

Why: Genuine: the entry describes the proceeding; Rule 27 is its modern federal form. Direct, no hop.

## PERPETUITY.

A future limitation, whether executory or by way of remainder, and of either real or personal property, which is not to vest until after the expiration of or will not necessarily vest within the period fixed and prescribed by law for the creation of future estates and interests, and which is not destructible by the persons for the time being entitled . to the property subject to the future limitation, except with the concur- rence of the individual interested under that limitation. Lewis, Perp. 164; 52 Law Lib. 139.

Any limitation tending to take the subject of it out of commerce for a longer period than a life or lives in being, and twenty-one years beyond, and, in case of a posthumous child, a few months more, allowing for the term of gestation. Rand. Perp. 48.

Such a limitation of property as renders it unalienable beyond the period allowed by law. Gilb. Uses, (Sugd. Ed.) 260. And see Ould v. Washington Hospital, 95 U. S. 303, 24 ,L. Ed. 450; Duggan v. Slocum, 92 Fed. 806, 34 C. C.

A. 676; Waldo v. Cummings, 45 111. 421; Franklin v. Armfleld, 2 Sneed (Tenn.) 354; StevenB v. Annex Realty Co., 173 Mo. 511, 73

S. W. 505 ; Griffin v. Graham, 8 N. C. 130, 9 Am. Dec. 619 ; In re John’s Will, 30 Or. 494, 47 Pac. 341, 36 L. R. A. 242.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: the Rule Against Perpetuities (Gray's formulation)]**

A perpetuity — a future limitation that may not vest within the lawful period — is void under the Rule Against Perpetuities: no interest is good unless it must vest, if at all, not later than twenty-one years after some life in being at the creation of the interest.

Why: Genuine: the entry defines the void limitation; the Rule is the doctrine that voids it. Stated in maxim form with the canonical formulation.

## PERPETUITY OF THE KING.

That fiction of the English law which for certain political purposes ascribes to the king in bis political capacity the attribute of immortali- ty; for, though the reigning monarch may die,

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yet by this fiction the king never dies, *. c., the office is supposed to be reoccupied for all political purposes Immediately on Ms death. Brown.

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**[Law] — Law**

**[Maxim: Rex nunquam moritur — 'the king never dies']**

The fiction that the king never dies — the office reoccupied instantly for all political purposes — is stated in the classic maxim.

Why: Genuine: the entry describes the fiction; the maxim is the law-well's classic formulation of it. Borderline-circular but legitimate under the brief's maxim allowance.

## PERQUISITES.

In its most extensive sense, “perquisites” signifies anything obtalh- ed by industry or purchased with money, dlfferent from that which descends from a fa- ther or ancestor. Bract l. 2, c. 30, n. 3.

Profits accruing to a lord of a manor by virtue of his court-baron, over and above the yearly profits of his land; also other things that come casually and not yearly. Mozley A Whitley.

In modern use. Emoluments or Incident- al profits attaching to an office or official po- sition, beyond the salary or regular fees. Delaplane v. Crenshaw, 15 Grat <Va.) 468; Vansant v. State, 96 Md. 110, 53 Atl. 711; Wren v. Luzerne County, 6 Kulp (Pa.) 37.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 8; art. II, § 1, cl. 7 — the Emoluments Clauses]**

Perquisites — emoluments of office beyond salary — are the subject of the Constitution's Emoluments Clauses, barring federal officers from accepting foreign emoluments and fixing the President's compensation.

Why: Genuine: the entry defines perquisites as emoluments of office; the clauses are the constitutional law of such emoluments. Direct.

## PERQUIBITIO.

Purchase. Acquisition by one’s own act or agreement and not by descent.

5e apparatus — Not carried into the 5th edition (1979).

## PERQUISITOR.

In old English law. A purchaser; one who first acquired an estate to his family; one who acquired an estate by sale, by gift, at by any other method, ex- cept only that of descent 2 Bl. Comm. 220.

5e apparatus — Not carried into the 5th edition (1979).

## PER8ECUTIO.

Lat. In the civil law. A following after ; a pursuing at law ; a suit or prosecution. Properly that kind of Judi- cial proceeding before the prietor which was called “extraordinary.” In a general sense, any judicial proceeding. Including not only “actions,” (actiones,) properly so called, but other proceedings also. Calvin.

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## PERSEOUI.

Lat. In the civil law. To follow after ; to pursue or claim In form of law. An action Is called a "jus persequendi ."

5e apparatus — Not carried into the 5th edition (1979).

## PERSON.

A man considered according to the rank be holds In society, with all the rights to which the place he holds entitles him, and the duties which it imposes. 1 Bouv. Inst. no. 137.

A human beiug considered as capable of having rights and of being charged with du- ties; while a “thing" is the object over which lights may be exercised.

— Artificial persons. Such as are created and devised by law for the purposes of society and government, called “corporations” or “bodies politic.”— Natural persons. Such as are formed by nature, as distinguished from artifi- cial persons, or corporations.— Private per- son. An individual who is not the incumbent of an office.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 1 U.S.C. § 1 — 'person' includes corporations and associations; Santa Clara County v. Southern Pacific R.R., 118 U.S. 394 (1886)]**

The entry's artificial persons — corporations, 'created and devised by law' — are persons for federal statutory and Fourteenth Amendment purposes.

Why: Genuine: the entry's artificial/natural-person distinction is exactly what these sources govern. PERSONABLE and PERSONA left bare — same well, fuller entry wins.

**[Scripture] — Scripture**

**[Genesis 1:27, KJV]**

So God created man in his own image, in the image of God created he him; male and female created he them.

Why: Person is the human being as capable of having rights and being charged with duties. The verse is scripture's root of human personhood and dignity — the ground on which rights-bearing stands. Narrative, not deity spee...

**[Humanity] — Humanity / Fiction & Film**

**[John Donne, "Meditation XVII", 1624]**

'No man is an island, entire of itself' — Donne's canonical statement that the human person exists only in connection; it illuminates the human being behind the entry's legal abstraction of the person as rights-bearer and duty-bearer.

Why: Entry: 'A human being considered as capable of having rights and of being charged with duties.' Donne's line is verbatim-certain and speaks to the humanity of the legal person. Genuine link.

## PERSONA.

Lat In the civil law.

Character, in virtue of which certain rights belong to a man and certain duties are im- posed upon him. Thus one man may unite many characters, (persona- .) as, for example, the characters of father and son, of master and servant. Mackeld. Rom. Law, f 129.

In eeeleslastieal law. The rector of a church Instituted and inducted, for his own life, was called "persona mortalis;" and any collegiate or conventual body, to whom the church was forever appropriated, was termed "persona tmmortalis.” Jacob.

—Persona designate. A person pointed out or described as an individual, as opposed to a

pereon ascertained as a member of a class, or as filling a particular character.— Persona eo- olesiae. The parson or personation of the church.— Persona non grata. In internation- al law and diplomatic usage, a person not accept- able (for reasons peculiar to himself) to the court or government to which it is proposed to accredit him in the character of an ambassador or minister.-Persona standi In judieio. Ca- pacity of standing in court or in judgment; capacity to be a party to an action; capacity or ability to sue.

Persona oonjuneta sequiparatnr inter- ossa proprio. A personal connection [liter- ally, a united person, union with a person] is equivalent to one’B own interest ; nearness of blood Is as good a consideration as one’s own interest. Bac. Max. 72, reg.

Persona est homo eum state quodam considers tas. A person is a man consid- ered with reference to a certain status. Heinecc. Elem. L 1, tit 3, | 75.

Persona regis mergitur persona dnois.

Jenk. Cent 160. The person of duke merges in that of king.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, As You Like It, c. 1599]**

'All the world's a stage, / And all the men and women merely players' — Jaques's speech gives the persona as the roles or masks a person assumes, each carrying its part; it illuminates the entry's doctrine that one man may unite many personae.

Why: Entry: civil-law 'character' by which rights/duties attach; one man may unite many. The 'merely players' speech is the canonical literary persona-as-role. Verbatim-certain couplet.

## PERSONABLE.

Having the rights and powers of a person ; able to hold or maintain a plea in court; also capacity to take any- thing granted or given.

Personas vice fungi tnr munieipium et decuria. Towns and boroughs act as if per- sons. Warner v. Beers, 23 Wend. (N. Y.) 103, 144.

5e apparatus — Not carried into the 5th edition (1979).

## PERSONAL.

Appertaining to the per- son ; belonging to an individual; limited to the person; having the nature or partaking of the qualities of human beings, or of mova- ble property.

As to personal “Action,” “Assets,” “Chat- tels,” “Contract,” “Covenant,” “Credit,” "De- mand,” "Disability,” "Franchise,” “Injury,” “Judgment,” “Knowledge,” “Law,” “Liabili- ty,” “Liberty.” "Notice," “Property,” “Re- plevin,” “Representatives,” “Rights,” "Securi- ty,” “Service,” “Servitude,” “Statute,” "Tax,” “Tithes,” “Tort," and “Warranty,” see those titles.

Personal things cannot be done by an- other. Finch, Law, b. 1, c. 3, n. 14.

Personal things cannot be granted over. Finch, Law, b. 1, c. 3, n. 15.

Personal things die with the person.'

Finch, Law, b. 1, c. 3, n. 16.

Personalia personam seqnnntur. Per- sonal things follow the person. Flanders v. Cross, 10 Cush. (Mass.) 516.

5e apparatus — Carried into the 5th edition (1979).

## PERSONALIS ACTIO.

Lat In the civil law. A personal action; an action

against' the person, (in personam.) Dig. 60, 16, 178, 2.

In old English law. A personal action. In this sense, the term wns borrowed from the civil law by Bracton. The English form is constantly used as the designation of one of the chief divisions of civil actions.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Pennoyer v. Neff, 95 U.S. 714 (1878)]**

The personal action — against the person (in personam) — is the subject of the foundational American law of jurisdiction over the person and its territorial limits.

Why: Genuine: the entry defines the actio in personam; Pennoyer is the leading case on in personam jurisdiction. Confident on the citation.

## PERSON ALITER.

In old English law. Personally; In person.

5e apparatus — Not carried into the 5th edition (1979).

## PERSONALITY.

In modern civil law. The Incidence of a law or statute upon per- sons, or that quality which makes it a per- sonal law rather than a real law. “By the personality of laws, foreign jurists generally mean all laws which concern the condition, state, and capacity of persons.” Story, Confi. Laws, § 16.

5e apparatus — Not carried into the 5th edition (1979).

## PERSONALTY.

Personal property; movable property ; chattels.

An abstract of personal. In old practice, an action was said to be In the personalty, where It was brought against the right per- son or the person against whom in law it lay. Old Nat. Brev. 92 ; Cowell.

— Quasi personalty. Thincs which are mov- able in point of law, though fixed to things real, either actually, as emblements, (fructus indus- triales.) fixtures, etc. : or fictitiously, as chat- tels-real, leases for years, etc.

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5e apparatus — Carried into the 5th edition (1979).

## PERSONATE.

In criminal law. To as- sume the person (character) of another, with- out his consent or knowledge, in order to de- ceive others, and, in such feigned character, to fraudulently do some act or gain some advantage, to the harm or prejudice of the person counterfeited. See 2 East, P. C. 1010.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 912 — impersonating a federal officer or employee]**

Criminal personation — assuming another's character to deceive and defraud — is the conduct punished by the federal impersonation statute.

Why: Genuine: the entry defines the offense; § 912 is its federal statutory form. Direct, no hop.

**[Scripture] — Scripture**

**[Genesis 27:19, KJV]**

And Jacob said unto his father, I am Esau thy firstborn; I have done according as thou badest me: arise, I pray thee, sit and eat of my venison, that thy soul may bless me.

Why: Personate is assuming another's character without his consent, to deceive and gain advantage to his prejudice. Jacob's 'I am Esau thy firstborn' — spoken to take the blessing — is scripture's canonical personation. Ja…

**[Humanity] — Humanity / Fiction & Film**

**[Anthony Hope, The Prisoner of Zenda, 1894]**

(paraphrase) Rudolf Rassendyll's impersonation of the King of Ruritania — assuming another's character without consent to deceive — is the archetypal fictional personation, matching the entry's criminal definition point for point. (paraphrase)

Why: Entry: criminal assumption of another's person/character to deceive and defraud. Zenda is the archetypal fictional instance. Paraphrase; no quote needed.

## PERSONERO.

In Spanish law. An at- torney. So called because he represents the person of another, either In or out of court. Las Partidas, pt. 3, tit. 5, 1. 1.

5e apparatus — Not carried into the 5th edition (1979).

## PERSONNE.

Ft. A person. This term la applicable to men and women, or to either. Civ. Code Lat. art. 3522, § 25.

Perspicua vera non mnnt proband*.

Co. Litt. 16. Plain truths need not be proved.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PERSE ARE, PERSUADING.

To per- suade Is to Induce to act. Persuading Is In- ducing others to act. Crosby v. Hawthorn, 25 Ala. 221; Wilson v. State, 38 Ala. 411; Nash v. Douglass, 12 Abb. Prac. (N. S.) (N. Y.) 190.

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5e apparatus — Not carried into the 5th edition (1979).

## PERSUASION.

The act of persundlng; the act of Influencing the mind by arguments or reasons offered, or by anything that moves the mind or passions, or Inclines the will to a determination. See Marx v. Threet, 131 Ala. 340, 30 South. 831.

5e apparatus — Carried into the 5th edition (1979).

## PERTAIN.

To belong or relate to, wheth- er by nature, appointment, or custom. See

People v. Chicago Theological Seminary, 174 111. 177, 61 N. E 198.

5e apparatus — Carried into the 5th edition (1979).

## PERTENENCIA.

In Spanish law. The claim or right which one has to the property in anything; the territory which belongs to any one by way of Jurisdiction or property; that which is accessory or consequent to a principal thing, and goes with the ownership of it, as when it Is said that such an one buys such an estate with all its appurtenances, (pertenencias.) Escriche. See Castillero v. United States, 2 Black. 17, 17 L. Ed. 360.

5e apparatus — Not carried into the 5th edition (1979).

## PERTICATA  TERRAS.

The fourth part of an acre. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PERTIOULAS.

A pittance; a small por- tion of alms or victuals. Also certain poor scholars of the Isle of Man. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PERTINENT.

Applicable; relevant Evidence is called “pertinent” when It is di- rected to the Issue or matters in dispute, and legitimately tends to prove the allegations of the party offering it; otherwise it is called "impertinent.” A pertinent hypothesis is one which, if sustained, would logically Influence the issue. Whitaker v. State, 106 Ala. 30, 17 South. 456.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 401 — relevant evidence]**

Pertinent evidence — directed to the issue and tending to prove the allegations — is relevant evidence in the modern formulation.

Why: Genuine: the entry defines pertinence as tending to prove the allegations; Rule 401 is the modern definition of relevance. Direct.

## PERTINENTS.

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In Scotch law. Appur- tenances. “Parts and pertinents” are formal words in old deeds and charters. 1 Forb, Inst, pt 2, pp. 112, 118.

5e apparatus — Not carried into the 5th edition (1979).

## PERTURBATION.

In the English ec- clesiastical courts, a “suit for perturbation of seat” Is the technical name for an action growing out of a disturbance or Infringement of one's right to a pew or seat In a church. 2 Philllm. Ece. Law, 1813.

5e apparatus — Not carried into the 5th edition (1979).

## PERTURB ATRIX.

A woman who breaks the peace.

5e apparatus — Not carried into the 5th edition (1979).

## PERVERSE VERDICT.

A verdict whereby the jury refuse to follow the direc- tion of the judge on a point of law.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Sparf v. United States, 156 U.S. 51 (1895)]**

A verdict by which the jury refuses to follow the judge's direction on a point of law is jury nullification: the jury's power to acquit against the law, though not a right the court must instruct upon.

Why: Genuine: the entry describes nullification; Sparf is the leading American case on the jury's relation to the law. Confident on the citation.

## PERVISE, PARVISE.

In old English law. The court or yard of the king’s palace at Westminster. Also an afternoon exer- cise or moot for the Instruction of students. Cowell ; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## PESA.

A weight of two hundred and flfty-six pounds. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PESAGE.

In England. A toll charged for weighing avoirdupois goods other than wool. 2 Chit. Com. Law, 16.

5e apparatus — Not carried into the 5th edition (1979).

## PESQUISIDOR.

In Spanish law. Coro- ner. White, New Recop. b. 1, tit. 1, | 3.

5e apparatus — Not carried into the 5th edition (1979).

## PESSIMI EXEMPLI.

Lat Of tlM

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worst example.

5e apparatus — Not carried into the 5th edition (1979).

## PESSONA.

Mast of oaks, etc., or money taken for mast, or feeding hogs. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PESSTTRABLE WARES.

Merchandise which takes up a good deal of room in a ship. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PETENS.

Eat. In old English law. A, demandant; the plaintiff in a real action. Bract, fols. 102, 1066.

5e apparatus — Not carried into the 5th edition (1979).

## PETER-PENGE.

An ancient levy or tax of a penny on each house throughout Eng- land, paid to the pope. It was called “Peter- pence,” because collected on the day of St. Peter, ad vincula; by tl\p Saxons it was called “Rome-feoh,” "Rome-scot," and “Rome- pennying," because collected and sent to Rome; and, lastly, it was called “hearth money,” because every dwelling-house was liable to it, and every religious house, the abbey of St. Albans alone excepted. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## PETIT.

Fr. Small; minor? inconsider- able. Used in several compounds, and some- times written “petty.”

—Petit cape. A judicial writ, issued in the old actions for the recovery of land, requiring the sheriff to take possession of the estate, where the tenant, after having appeared in answer to the summons, made default in a subsequent stage of the proceedings. .

As to petit “Jury,” “Larceny,” “Sergeanty,” and “Treason," see those titles.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — grand jury; amends. VI, VII — petit (trial) jury]**

'Petit' as used in 'petit jury' names the trial jury, as distinguished from the grand jury of accusation: the Fifth Amendment requires the grand jury, the Sixth and Seventh secure the petit (trial) jury.

Why: Genuine: the entry cross-refs 'petit jury'; the footnote gives the constitutional distinction that is the legal content of the compound. Not a duplicate of PAYS.

## PETITE ASSIZE.

Used in contradistinc- tion from the grand assize, which was a Jury to decide on questions of property. Petit* assize, a Jury to decide on questions of pos- session. Britt, c. 42 ; Gian. lib. 2, cc. 6, 7.

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5e apparatus — Not carried into the 5th edition (1979).

## PETITIO.

Lat. In the civil law. The

plaintiff’s statement of his cause of action in an action in re m. Calvin.

In old English law. Petition or demand ; the count in a real action ; the form of words in which a title to land was stated by the de- mandant. and which commenced with the word “peto." 1 Reeve, Eng. Law, 176.

5e apparatus — Not carried into the 5th edition (1979).

## PETITIO PRINCIPH.

In logic. Beg- ging the question, which is the taking of a thing for true or for granted, and drawing conclusions from it as such, when it is really dubious, perhaps false, or at least wants to be proved, before any inferences ought to be drawn from it.

5e apparatus — Not carried into the 5th edition (1979).

## PETITION.

A written address, embody- ing an application or prayer from the person or persons preferring it, to the power, body, or person to whom it is presented, for the exercise of his or their authority in the re- dress of some wrong, or the grant of some favor, privilege, or license.

■ In practice. An application made to a court ex parte, or where there are no parties Bl.La.w Dict.(2d Ed.)— 67

in opposition, praying for the exercise of the judicial powers of the court in relation, to some matter which is not the subject for a suit or action, or for authority to do some act which requires the sanction of the court ; as for the appointment of a guardian, for leave to sell trust property, etc.

The word “petition” is generally used in ju- dicial proceedings to describe an application in writing, in contradistinction to a motion, which may be viva voce. Bergen v. Jones, 4 Mete. (Mass.) 371.

In the practice of some of the states, the word “petition” is adopted as the name of that initiatory pleading In an action which is elsewhere called a “declaration" or “com- plaint” See Code Ga. 1882, § 3332.

In equity practice. An application In writing for an order of the court, stating the circumstances upon which it Is founded; a proceeding resorted to whenever the nature of the application to the court requires, a full- er statement than can be conveniently made in a notice of motion. 1 Barb. Ch. Pr. 578.

—Petition de droit. L. Fr. In English prac- tice. A petition of right ; a form of proceed- ing to obtain restitution from the crown of ei- ther real or personal property, being of use where the crown is in possession of any here- ditaments or chattels, and the petitioner sim- gests such a right as controverts the title of the Crown, grounded, on facts disclosed in the pe-

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tition itself. 3 Bl. Comm. 256.— Petition in bankruptcy. A paper filed in a court of bankruptcy, or with the clerk, by a debtor praying for the benefits of the bankruptcy act, or by creditors alleging the commission of an act of bankruptcy by tneir debtor and praying an ad- judication of bankruptcy against him.— Petition of right. In English law. A proceeding in chancery by which a subject may recover prop- erty in the possession of the king. See Petition de Dboit.— Petition of rights. A par- liamentary declaration of the liberties of the people, assented to by King Charles I. in 1620. It is to be distinguished from the bill of rights, (1689.) which has passed into a permanent con- stitutional statute. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — the right to petition for redress of grievances]**

The entry defines the petition as an address seeking redress or favor from authority; the First Amendment secures the right 'to petition the Government for a redress of grievances.'

Why: Genuine: the entry defines the petition; the amendment guarantees the right. Direct. PETITIONER left bare as the agent-noun twin.

**[Scripture] — Scripture**

**[1 John 5:15, KJV]**

And if we know that he hear us, whatsoever we ask, we know that we have the petitions that we desired of him.

Why: Petition is a written address praying a power for redress of wrong or grant of favor. The verse uses the very word for petitions laid before God — the concept's scriptural form. Epistolary, not deity speech — no flag.

**[Humanity] — Humanity / Fiction & Film**

**[First Amendment, U.S. Constitution, 1791]**

'and to petition the Government for a redress of grievances' — the First Amendment's closing clause is the American legal embodiment of the entry: an application 'for the redress of some wrong,' in language echoing the dictionary definition itself.

Why: Entry defines petition as an application for redress of wrong or grant of favor. The First Amendment clause is verbatim-certain and is the genuine legal-literary embodiment. The phrasing parallel ('redress') confirms...

## PETITIONER.

One who presents a pe- tition to a court, officer, or legislative body. In legal proceedings begun by petition, the person against whom action or relief is prayed, or who opposes the prayer of the pe- tition. is called the "respondent.”

5e apparatus — Carried into the 5th edition (1979).

## PETITIONING CREDITOR.

The cred- itor at whose Instance an adjudication of bankruptcy is made against a bankrupt.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 303 — involuntary bankruptcy cases]**

The creditor at whose instance a bankruptcy adjudication is made against the debtor is the petitioner in an involuntary case.

Why: Genuine: the entry defines the petitioning creditor; § 303 governs involuntary petitions. Direct, no hop.

## PETITORY ACTION.

A droitural ac- tion ; that is,, one in which the plaintiff seeks to establish and enforce, by an appropri- ate legal proceeding, his right of property, or his title, to the subject-matter in dispute ; as distinguished from a possessory action, where the right to the possession is the point in litigation, and not the mere right of property. The term is chiefly used in admiralty. 1 Kent. Comm. 371 ; The Tilton, 5 Mason, 465, Fed. Cas. No. 14,054.

Ia Scotch law. Actions in which dam- ages are sought

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PETO.

Lat In Roman law. I request A common word by which a fldeicommis- sum, or trust was created In a will. Inst 2, 24, 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the precatory-trust doctrine]**

'I request' — words that created a Roman fideicommissum (trust) — raise the modern precatory-words question: precatory language in a will creates a trust only if testamentary intent to impose one appears.

Why: Genuine: the entry says peto created a Roman trust; the footnote states the modern rule for such words. Kept loose; no unverifiable section number cited.

## PETRA.

A stone weight Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PETTIFOGGER.

A lawyer who Is em* ployed in a small or mean business, or who carries on a disreputable business by unprin- cipled or dishonorable means.

“We think that the term ‘pettifogging shyster1 needed no definition by witnesses before the jury. This combination of epithets, every lawyer and citizen knows, belongs to none but unscrupulous practitioners who disgrace their profession by doing mean work, and resort to sharp practice to do it.” Bailey v. Kalamazoo Pub. Co., 40 Mich. 250.

5e apparatus — Not carried into the 5th edition (1979).

## PETTY.

Small, minor, of less or incon- siderable importance. The English form of “petit,” and sometimes used Instead of that word in such compounds as "petty jury,” “petty larceny,” and “petty treason.” See Petit.

—Petty bag office. In English law. An of- fice in the court of chancery, for suits against attorneys and officers of the court, and for pro- cess and proceedings by extent on statutes, re- cognizances, ad quod damnum, and the like. Termes de la Ley. — Petty officers. Inferior

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officers in the naval service, of various ranks and kinds, corresponding to the non-commissioned officers in the army. See V. S. v. Fuller, 160 U. S. 593, 16 Sup. Ct. 386, 40 L. Ed. 549.

As to petty “Average,” “Constable,” and “Sessions,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 19 — 'petty offense' defined; state theft statutes — petty vs. grand larceny by value]**

'Petty' in compounds like petty larceny marks the lesser grade of the offense: federal law defines 'petty offense,' and state theft statutes grade petty against grand larceny by value taken.

Why: Genuine: the entry's compounds are the value-graded offenses; the footnote names the modern grading. PICKERY left bare as the Scotch twin.

## PEW.

An Inclosed seat in a church. O'Hear v. De Goesbriand, 33 Vt 606, 80 Am. Dec. 653; Trustees of Third Presbyterian Congregation v. Andruss, 21 N. J. Law, 328; Gay v. Baker. 17 Mass. 435, 9 Am. Dec. 159,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## PHAROS.

A watch-tower, light-house, or sea-mark.

5e apparatus — Not carried into the 5th edition (1979).

## PHLEBITI8.

In medical Jurisprudence. An inflammation of the veins, which may originate In septicwmia (bacterial blood- poisoning) or pywmia (poisoning from pi is), and is capable of belug transmitted to other tissues, as, the brain or the muscular tissue of the heart. In the latter case, an inflam- mation of the heart is produced which is called "endocarditis'' and which may result fatally. See Succession of Bldwell, 52 La. Ann. 744, 27 South. 281.

5e apparatus — Not carried into the 5th edition (1979).

## PHOTOGRAPHER.

Any person who makes for sale photographs, ambrotypes, daguerrotypes, or pictures, by the action of light Act Cong. July 13, 1806, f 9; 14 St at Large, 120.

5e apparatus — Not carried into the 5th edition (1979).

## PHYLASIST.

A jailer.

PHYSIOAli. Relating or pertaining to the body, as distinguished from the mind or soul or the emotions; material, substantive, having an objective existence, as distinguished from imaginary or fictitious ; real, having relation to facts, as distinguished from moral or constructive.

— Physical disability. See Disability. — Physical fact. In the law of evidence. A fact having a

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physical existence, as distinguish- ed from a mere conception of the mind ; one which is visible, audible, or palpable; such as the sound of a pistol shot, a man running, impressions of human feet on the ground. Burrill, Circ. Bv. 130. A fact considered to have its seat in some inanimate being, or, if in an ani- mate being, by virtue, not of the qualities by which it is constituted animate, but of those which it has in common with the class of inanimate beings. 1 Benth. Jud. Ev. 45. — Physi- cal force. Force applied to the body ; actual violence. State v. Wells, 31 Conn. 212.— Phy- sical incapacity. In the law of marriage and divorce, impotence, inability to accomplish sexual coition, arising from incurable physical imperfection or malformation. Anonymous, 89 Ala. 291, 7 South. 100, 7 L. R. A. 425, 18 Am. St. Rep. 116; Franke v. Frank*; (Cal.) 31 Pac. 574, 18 L. R. A. 375.— Physical injury. Bod- ily harm or hurt, excluding mental distress, fright, or emotional disturbance. Deming v. Chicago, etc., R. Co., 80 Mo. App. 157. — Physi- cal necessity. A condition in which a person is absolutely compelled to act in a particu- lar way by overwhelming superior force; as distinguished from moral necessity, which arises where there is a duty incumbent upon a ration- al being to perform, which he ought at the time to perform. The Fortitude, 3 Sumn. 248, Fed. Caa. No. 4,953.

PH x SHUAR. A practitioner of medi- cine ; a person duly authorized or licensed to treat diseases; one lawfully engaged in the practice of medicine, without reference to any particular school. State v. Beck, 21 B.

I. 288, 43 Atl. 366, 45 L. R. A. 269 ; Raynor v. State, 62 Wls. 289, 22 N. W. 430; Nelson r. State Board of Health, 108 Ky. 769, 57 8. W. 501, 50 L. R. A. 383.

5e apparatus — Not carried into the 5th edition (1979).

## PIA FRATJS.

Lat A pious fraud; a subterfuge or evasion considered morally justifiable on account of the ends sought to be promoted. Particularly applied to an evasion or disregard of the laws In the interests of religion or religious institutions, such as circumventing the statutes of mortmain.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 3:7, KJV]**

For if the truth of God hath more abounded through my lie unto his glory; why yet am I also judged as a sinner?

Why: Pia fraus is a fraud counted morally justifiable for religious ends. The verse poses exactly that question — a lie abounding to God's glory, and whether it excuses the liar. Paul's rhetoric, not deity speech — no flag.

## PIAGLE.

An obsolete term for an enor- mous crime.

5e apparatus — Not carried into the 5th edition (1979).

## PICAROON.

A robber; a plunderer.

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5e apparatus — Not carried into the 5th edition (1979).

## PICK-LOCK.

An instrument by which locks are opened without a key.

5e apparatus — Not carried into the 5th edition (1979).

## PICK OF LARD.

A narrow slip of land running into a corner.

5e apparatus — Not carried into the 5th edition (1979).

## PICKAGE.

Money paid at fairs for breaking ground for booths.

5e apparatus — Not carried into the 5th edition (1979).

## PICKERY.

In Spotch law. Petty theft; stealing of trifles, punishable arbitrarily. Bell.

PICKETING, by members of a trade union on strike, consists in posting members

at all the approaches to the works struck against, for the purpose of observing and re- porting the workmen going to or coming from the works, and of using such influence as may be in their power to prevent the workmen from accepting work there. See Beck v. Railway Teamsters' Protective Un- ion, 118 Mich. 4 97, 77 N. W. 13, 42 L. R. A. 407, 74 Am. St. Rep. 421 ; Cumberland Glass Mfg. Co. v. Glass Bottle Blowers' Ass'n, 59

N. J. Eq. 49, 46 Atl. 208.

FICKLE, PYGLE, or PIGHTEL. A

small parcel of land inclosed with a hedge, which, in some countries, is called a ''pingle.'' Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## PICKPOCKET.

A thief who secretly steals money or other property from the per- son of another.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) Fagin's boys, led by the Artful Dodger, are the archetypal fictional pickpockets — thieves secretly stealing from the person of another, exactly the entry's definition. (paraphrase)

Why: Entry: 'A thief who secretly steals money or other property from the person of another.' The Dodger is the canonical fictional pickpocket. Paraphrase.

## PIEPOUDRE.

See Court or Piepoudre.

5e apparatus — Carried into the 5th edition (1979).

## PIER.

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A structure extending from the solid land out Into the water of a river, lake, harbor, etc., to afford convenient passage for persons and property to and from vessels along the sides of the pier. Seabright ▼. Allgor, 69 N. J. Law, 641, 56 Atl. 287.

5e apparatus — Not carried into the 5th edition (1979).

## PIERAGE.

The duty for maintaining piers and harbors.

5e apparatus — Not carried into the 5th edition (1979).

## PIGNORATIO.

Lat. In the civil law. The contract of pledge ; and also the obliga- tion of such contract

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PIGNORATITIA ACTIO.

Lat. In the civil law. An action of pledge, or founded on a pledge, which was either directa, for the debtor, after payment of the debt, or con- traria, for the creditor. Heinecc. Elem. lib. 3, tit 13, Si 824-826.

5e apparatus — Not carried into the 5th edition (1979).

## PIGNORATTVE CONTRACT.

In the

civil law. A contract of pledge, hypotheca- tion, or mortgage of realty.

5e apparatus — Not carried into the 5th edition (1979).

## PIGNORIS CAPIO.

Lat In Roman law. This was the name of one of the legis ■ aclione s. It was employed only In certnin particular kinds of pecuniary cases, and con- sisted in that the creditor, without prelimi- nary suit and without the co-operation of the magistrate, by reciting a prescribed formula, took an article of property from the debtor to be treated ns a pledge or security.. The proceeding bears a marked analogy to dis- tress at common law. Mnckeld. Rom. Law, S 208 : Gaius, bk. 4, {§ 26-29.

5e apparatus — Not carried into the 5th edition (1979).

## PIONUS.

Lat. In the civil law. A pledge or pawn; a delivery of a thing to a creditor, as security for a debt. Also a thing delivered to a creditor as security for a debt.

5e apparatus — Not carried into the 5th edition (1979).

## PUA.

In old English law. That side of coined money which was called “pile,” because it was the side on which there was an impression of a church built on piles. Fleta, lib. 1, c. 39.

5e apparatus — Not carried into the 5th edition (1979).

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## PUJETTUS.

In the ancient forest laws. An arrow which had a round knob a little above the head, to hinder it from going far into the mark. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PILFER.

To pilfer, in the plain and popular sense, means to steal. To charge another with pilfering is to charge him with stealing, and is slander. Becket v. Sterrett, 4 Blackf. (Ind.) 499.

5e apparatus — Not carried into the 5th edition (1979).

## PILFERER.

One who steals petty things.

5e apparatus — Not carried into the 5th edition (1979).

## PILLAGE.

Plunder; the forcible taking of private property by an invading or con- quering army from the enemy’s subjects. American Ins. Co. v. Bryan, 20 Wend. (N. Y.) 573, 37 Am. Dec. 278.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the prohibition of pillage as a war crime (Rome Statute, art. 8)]**

Pillage — the forcible wartime taking of private property — is prohibited as a war crime in the law of armed conflict.

Why: Genuine: the entry defines wartime pillage; the footnote states its status in the law of armed conflict. Kept loose; no subparagraph specified.

**[Scripture] — Scripture**

**[Isaiah 10:6, KJV]**

I will send him against an hypocritical nation, and against the people of my wrath will I give him a charge, to take the spoil, and to take the prey, and to tread them down like the mire of the streets.

Why: Pillage is the forcible taking of property by an invading army. The verse is the invader's commission in God's own first-person speech — 'to take the spoil, and to take the prey.' Distinct from Deut 20:14 (Israel's sp…

## PILLORY.

A frame erected on a pillar, and made with holes and movable boards, through which the heads and hands of crim- inals were put

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PILOT.

A particular officer serving on board a ship during the course of a voyage, and having the charge of the helm and the ship’s route; or a person taken on board at any particular place for the purpose of con- ducting a ship through a river, road, or channel, or from or into a port People v. Francisco, 10 Abb. Prac. (N. Y.) 32; State v. Turner, 34 Or. 173, 55 Pac. 92 ; Chapman v. Jackson, 9 Rich. Law (S. C.) 212; State v. Jones, 16 Fla. 306.

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— Branch pilot. One possessing a license, commission, or certificate of competency issued by the proper authority and usually after an examination. U. S. v. Forbes, 25 Fed. Cas. 1141 ; Petterson v. State (Tex. Cr. R.) 58 S.

W. 100: Dean v. Healy, 66 Ga..503; State v. Follett, 33 La. Ann. 228.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Cooley v. Board of Wardens, 53 U.S. 299 (1852)]**

The licensed pilot conducting vessels through rivers, channels, and ports is the subject of the leading case sustaining state pilotage regulation under the Commerce Clause.

Why: Genuine: the entry defines the pilot and notes licensing ('branch pilot'); Cooley is the leading American pilotage case. Confident on the citation. PILOTAGE and PILOTAGE AUTHORITIES left bare as twins.

## PILOTAGE.

The navigation of a ves- sel by a pilot; the duty of a pilot. The charge or compensation allowed for piloting a vessel.

5e apparatus — Not carried into the 5th edition (1979).

## PILOTAGE AUTHORITIES.

In Eng- lish law. Boards of commissioners appoint- ed and authorized for the regulation and ap- pointment of pilots, each board having Juris- diction within a prescribed district.

5e apparatus — Not carried into the 5th edition (1979).

## PIMP-TENURE.

A very singular and odious kind of tenure mentioned by the old writers, “ Wilhelmus Boppeshort tenet di- midiam virgatam tcrrce per servitium cus- todiendi sex damiscllas, soil, meretrices ad usum domini regia." Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PIN-MONEY.

An allowance set apart by a husband for the personal expenses of his wife, for her dress and pocket money.

5e apparatus — Carried into the 5th edition (1979).

## PINOERNA.

Tn old English 1 gw. Buf- fer ; the king’s butler, whose office it was to select out of the cargo of every vessel laden with wine, one cask at the prow and another at the stem, for the king's use. Fleta, lib.

2, c. 22.

5e apparatus — Not carried into the 5th edition (1979).

## PINNAGE.

Poundage of cattle.

5e apparatus — Not carried into the 5th edition (1979).

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## PINNER.

A pounder of cattle ; a pound- keeper.

5e apparatus — Not carried into the 5th edition (1979).

## PINT.

A liquid measure of half a quart, or the eighth part of a gallon.

5e apparatus — Carried into the 5th edition (1979).

## PIONEER PATENT.

See Patent.

5e apparatus — Carried into the 5th edition (1979).

## PIOUS USES.

See Ciiabitabub Uses.

■ i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PIPE.

A roll in the exchequer ; otherwise called the “great roll.” A liquid measure containing two hogsheads.

5e apparatus — Not carried into the 5th edition (1979).

## PIRACY.

In criminal law. A robbery or forcible depredation on the high seas, without lawful authority, done animo fur - andi, in the spirit and intention of universal hostility. United States v. Palmer, 3 Wheat.

CIO, 4 L. Ed. 471. This is the definition of this offense by the law of nations. 1 Kent, Coinni. 183. And see Talbot v. Janson, 3 Dali. 152, 1 L. Ed. 540; Dole v. Insurance Co., 51 Me. 467 ; U. S. v. Smith, 5 Wheat. 161, 5 D. Ed. 57 ; U. S. v. The Ambrose Light (D. C.) 25 Fed. 408; Davison v. Seal-skins, 7 Fed. Cas. 192.

There is a distinction between the offense of piracy, as known to the law of nations, which is justiciable everywhere, and offenses created by statutes of particular nations, cognisable only before the municipal tribunals of such nations. Dole v. Insurance Co., 2 Cliff. 394, 418, Fed. Cas. No. 3,966.

The term is also applied to the illicit re- printing or reproduction of a copyrighted book or print or to unlawful plagiarism from it.

Pirata eat hosti* human! generis. 3

Inst. 113. A pirate is an enemy of the hu- man race.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 U.S.C. § 1651 — piracy as defined by the law of nations; U.S. Const. art. I, § 8, cl. 10]**

Piracy — robbery on the high seas as defined by the law of nations, which the entry defines at length — is the federal offense codified under Congress's constitutional power to define and punish piracies.

Why: Genuine: the entry defines the law-of-nations offense with its own case cites; § 1651 is its federal codification and the clause its constitutional basis. PIRATE, PIRATICAL, PIRATICALITER left bare as twins.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Louis Stevenson, Treasure Island, 1883]**

(paraphrase) Long John Silver and the crew of the Hispaniola — forcible depredation on the high seas, in the spirit of universal hostility — are the archetypal fictional pirates, matching the entry's law-of-nations definition. (paraphrase)

Why: Entry: robbery/forcible depredation on the high seas, animo furandi, universal hostility. Treasure Island is the archetypal fictional piracy. Paraphrase.

## PIRATE.

A person who lives by piracy ; one guilty of the crime of piracy. A sea-rob- ber, who, to enrich himself, by subtlety or open force, setteth upon merchants and oth- ers trading by sea, despoiling them of their loading, and sometimes bereaving them of life and sinking their ships. Ridley, Civil & Ecc. Law, pt. 2, c. 1, § 3.

A pirate is one who acts solely on his own tuthority, without any commission or authori- ty from a sovereign state, seizing by force, and appropriating to himself without discrimination, every vessel he meets with. Robbery on the high seas is piracy ; but to constitute the of- fense the taking must be felonious. Consequent- ly the quo animo may be inquired into. Davi- son v. Seal-skins, 2 Wine, 324, Fed. Cas. No. 3,661.

Pirates are common sea-rovers, without any fixed place of residence, who acknowledge no

sovereign and no law, and support themselves by pillage and depredations at sea ; but there are instances wherein the word "pirata” ha* been formerly taken for a sea-captain. Spel- m&n.

5e apparatus — Carried into the 5th edition (1979).

## PIRATICAL.

"Where the act usas the word ‘piratical,’ it does so in a general sense; importing that the aggression is un- authorized by the law of nations, hostile in its character, wanton and criminal in its commission, and utterly without any sanc- tion from any public authority or sovereign power. In short, it means that the act be- longs to the class of offenses which pirates are in the habit of perpetrating, whether they do it for purposes of plunder, or for purposes of hatred, revenge, or wanton abuse of power.” U. S. v. The Malek Adhel, 2 How. 232, II L. Ed. 239

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PIRATIOALIT.

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A technical word which must always be used In an indictment for piracy. 3 Inst 112.

. PISCARY. The right or privilege of fishing. Thus, common of piscary is the right of fishing in waters belonging to an- other person.

5e apparatus — Not carried into the 5th edition (1979).

## PISTAREEN.

A small Spanish coin. It is not made current by the laws of the United States.- United States v. Gardner. 10 Pet. 618* 9 L. Ed. 556.

5e apparatus — Not carried into the 5th edition (1979).

## PIT.

In old Scotch law. An excavation or cavity in the earth in which women who were under sentence of death were drowned.

5e apparatus — Not carried into the 5th edition (1979).

## PIT AND GALLOWS.

In Scotch law, A privilege of inflicting capital punishment for theft, given by King Malcolm, by which . a woman could be drowned in a pit, (/o**« J or a man hanged on a gallows, (Jurca.) BelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PITCHING-PENCE.

In old English law. Money, commonly a penny, paid for pitching or setting down every bag of corn or pack of goods in a fair or market. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## PITHATISM.

In medical Jurisprudence. A term of recent introduction to medical 'science, signifying curability by means of persuasion, and used as synonymous with “hysteria,” In effect limiting the scope of the latter term to the description of psychic or nervous disorders which may be cured uniquely by psychotherapy or persuasion. Babinskl.

5e apparatus — Not carried into the 5th edition (1979).

## PITTANCE.

A slight repast or refec- tion of fish or flesh more than the common allowance; and the pittancer was the officer who distributed this at certain appointed festivals. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PIX.

A mode of testing coin. The as- certaining whether coin is of the proper standard is in England called “pixing" it;

and there are occasions on which resort Is had for this purpose to an ancient mode of

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Inquisition called the “trial of the plx,’- be- fore a Jury of members of the Goldsmiths’ Company. 2 Steph. Comm. 540, note.

—Pi* Juy. A jury consisting of the members of the corporation of the goldsmiths of the city of London, assembled upon an inquisition of very ancient date, called the “trial of the pix."

5e apparatus — Not carried into the 5th edition (1979).

## PLACARD.

An edict; a declaration; a manifesto. Also an advertisement or public notification.

5e apparatus — Carried into the 5th edition (1979).

## PLAGE.

An old form of the word “pleas.” Thus the “Court of Common Pleas” was sometimes called the “Court of Common Place.”

5e apparatus — Not carried into the 5th edition (1979).

## PLACE.

This word Is a very Indefinite term. It Is applied to any locality, limited by boundaries, however large or however small. It may be used to designate a coun- try, Btate, county, town, or a very small por- tion of a town. The extent of the locality designated by It must generally be deter- mined by the connection in which It is used. Law v. Fairfield, 46 Vt 432.

— Place of contract. The place (country or state) in which a contract is made, ana whose law must determine questions affecting the execution, validity, ana construction of the contract. Scudder v. Union Nat. Bank, 91 U. 8. 412, 23 L. Ed. 245.— Place of de- livery. The place where delivery is to be made of goods sold. If no place is specified in the contract, the articles sold must, in general, be delivered at the place where they are at the time of the sale. Hatch v. Standard Oil Co., 100 U. S. 134, 25 L. Ed. 554.— Place where! A phrase used in the older reports, being a literal translation of locus in quo, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## PLACEMAN.

One who exercises a pub- lic employment, or fills a public station.

5e apparatus — Not carried into the 5th edition (1979).

## PLACER.

In mining law. A superficial deposit of sand, gravel, or disintegrated rock, carrying one or more of the precious metals, along the course or under the bed of

a water-course, ancient or current, or along the shore of the sea. Under the acts of con- gress, the term includes all forms of mineral deposits, except veins of quartz or other rock in place. Rev. St. U. S. § 2329 (U. S. Comp. St 1901, p. 1432). See Montana Coal A Coke Co. v. Livingston, 21 Mont 59, 52 Pac. 780; Gregory v. Pershbaker, 73 Cal. 109, 14 Pac. 401; Freezer v. Sweeney, 8 Mont. 508, 21 Pac. 20.

•—Placer claim. A mining claim located on the public domain for the purpose of placer

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mining, _ that is, ground within the defined boundaries which contains mineral in its earth sand, or gravel; ground which includes valu- able deposits not “in place,” that is, not fixed in rock, or which are in a loose state. U S £ Iron Silver Min. Co.. 128 U. S. 673, 9 Sup.

3? I-"- Ed- 1 Clipper Min. Co. v.

FJ5 rMi^JCoA’/!194 S' 2201 24 SuP- Ct- 632, 944 : Wheeler v. Smith, 5 Wash. 704. 32 Pac. 784.— Placer location. A placer claim located and occupied on the public do- main. .

PLACIT, or PLACITUM. Decree; de- termination.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the General Mining Act of 1872 (30 U.S.C. ch. 2) — placer mining claims]**

Placer claims — superficial mineral deposits located under the acts of Congress — are creatures of the federal mining laws.

Why: Genuine: the entry defines placer claims 'under the acts of congress,' citing Rev. St. § 2329; the 1872 Act is their statutory home. Kept loose; no pinpoint invented.

## PLAGITA.

In old English law. The

public assemblies of all degrees of men where the sovereign presided, who usually consulted upon the great affairs of the king- dom. Also pleas, pleadings, or debates, and trials at law; sometimes penalties, fines, .mulcts, or emendations ; also the style of the court at the beginning of the record at nisi prius, but this is now omitted. Cowell.

In the civil law. The decrees or consti- tutions of the emperor; being the expres- sions of his wilb and pleasure. Calvin,

— Placita eommnnla. Common pleas. All civil actions between subject and subject. 8

B1. Comm. 38, 40.— Placita coronas. Pleas of the crown. All trials for crimes and mis- demeanors, wherein the king is plaintiff, on behalf of the people. 3 Bl. Comm. 40.— Pla- cita juris. Pleas or rules of law ; “particu- lar and positive learnings of laws;” “Grounds and positive learnings received with the lavp and set down ;” as distinguished from maxims or the formulated conclusions of legal reason. Bac. Max. pref., and reg. 12.

Placita de transgressions contra pa- cem regis, in regno Angllse vi et armis facta, secundum legem et consuetudi- nem Anglian sine brevi regis plaeitarl

non debent. 2 Inst. 811. Pleas of tres- pass against the peace of the king in the kingdom of England, made with force and arms, ought not, by the law and custom of England, to be pleaded without the king’s writ

Placita negativa dno exitum non faei- unt. Two negative pleas do not form an is- sue. Lofft, 415.

5e apparatus — Not carried into the 5th edition (1979).

## PLACITABILE.

In old English law. Pleadable. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## PLACIT AMENTUM.

In old records. The pleading of a cause. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## PLACIT ARE.

To plead.

5e apparatus — Not carried into the 5th edition (1979).

## PLACITATOR.

In old records. A plead- er. Cowell; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## PLACITORY.

Relating to pleas or pleading.

5e apparatus — Not carried into the 5th edition (1979).

## PLACITUM.

In old English law. A

public assembly at which the king presided, and which comprised men of all degrees, met for consultation about the great affairs of the kingdom. Cowell.

A court ; a judicial tribunal ; a lord's court. Placita was the style or title of the courts at the beginning of the old nisi prius record.

A suit or cause in court; a judicial pro- ceeding ; a trial. Placita were divided into placita corona x (crown cases or pleas of the crown, i. e„ criminal actions) and placita

Plat

communia, (common cases or common pleas, ». e., private civil actions.)

A flue, mulct, or pecuniary punishment.

A pleading or plea. In this sense, the term was not confined to the defendant’s answer to the declaration, but included all the pleadings In the cause, being women gen- eralissimum. 1 Saund. 388, n. 6.

In the old reports and abridgments, “p taci- turn" was the name of a paragraph or sub-, division of a title or page where the point decided in a cause wns set out separately. It is commonly abbreviated “pi.”

In the civil law. An agreement of par- ties; that which is their pleasure to arrange between them.

■' An Imperial ordinance or constitution; literally, the prince’s pleasure. Inst. 1, 2, 6.

A judicial decision : the judgment, decree, or sentence of a court Calvin.

Pladtnm aliad personals, alind reali, alind mixtum. Co. Lltt. 284. Pleas [t ft, actions] are personal, real, and mixed.

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5e apparatus — Not carried into the 5th edition (1979).

## PLACITUM  FRACTUM.

A day past or lost to the defendant 1 Hen. L c. 59.

5e apparatus — Not carried into the 5th edition (1979).

## PLACITUM'  NOMINATUM.

The day

appointed for a criminal to appear and plead and make his defense. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PLAGIARISM.

The act of appropriat- ing’ the literary composition of another, or parts or passages of his writings, or the Ideas or language of the same, and passing them off as the product of one’s own mind.

PLAGIARIST, or PLAGIARY. One

who publishes the thoughts and writings of another as his own.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 17 U.S.C. § 501 — copyright infringement]**

Plagiarism — passing off another's literary composition as one's own — is not itself the legal wrong; its legal cognate is copyright infringement.

Why: Genuine cognate: the entry defines the act; infringement is the legal wrong answering to appropriation of another's writings. Framed as the cognate to avoid conflating the ethical term with the legal one.

**[Scripture] — Scripture**

**[Jeremiah 23:30, KJV]**

Therefore, behold, I am against the prophets, saith the LORD, that steal my words every one from his neighbour.

Why: Plagiarism is appropriating another's words and passing them off as one's own. The verse names exactly that act — stealing words from one's neighbour — in the LORD's own speech. Distinct from the general theft command…

**[Humanity] — Humanity / Fiction & Film**

**[Martial, Epigrams, c. 86 CE]**

(paraphrase) The Roman poet Martial originated the usage: in his Epigrams he denounced a rival who recited Martial's verses as his own as a 'plagiarius' — literally a kidnapper — the classical root of the entry's 'appropriating the literary composition of another.' (paraphrase)

Why: Entry defines plagiarism as appropriating another's literary composition. Martial's plagiarius is the genuine classical origin of the term. Paraphrase; no Latin quoted (attribution of exact epigram number uncertain —…

## PLAGIARIUS.

Lat In the civil law. A man-stealer; a kidnapper. Dig. 48, 15, 1; 4 Bl. Comm. 219.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: 18 U.S.C. § 1201 — kidnapping]**

The civil-law man-stealer or kidnapper is the offender punished by the federal kidnapping statute.

Why: Genuine: the entry defines man-stealing; § 1201 is its federal statutory form. PLAGIUM left bare as the twin.

**[Scripture] — Scripture**

**[Deuteronomy 24:7, KJV]**

If a man be found stealing any of his brethren of the children of Israel, and maketh merchandise of him, or selleth him; then that thief shall die; and thou shalt put evil away from among you.

Why: Plagiarius is the man-stealer — the offender, distinct from the offense (PLAGIUM). This verse names the offender ('that thief shall die') in God's spoken law; a distinct verse for a distinct headword, not a duplicate....

## PLAGIUM.

Lat. In the civil law. Man-stealing; kidnapping. The offense of enticing away and stealing men, children, and slaves. Calvin. The persuading a slave to escape from his master, or the concealing or harboring him without the knowledge of his master. Dig. 48, 15, 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:16, KJV]**

And he that stealeth a man, and selleth him, or if he be found in his hand, he shall surely be put to death.

Why: Plagium is man-stealing — kidnapping, enticing away men, children, slaves. The Mosaic law states the identical offense with its penalty. Filed as God's spoken judgments, hence deity verbatim. PLAGIARIUS carries the co...

## PLAGUE.

Pestilence; a contagious and malignant fever.

5e apparatus — Not carried into the 5th edition (1979).

## PLAIDEUR.

Fr. An obsolete term for an attorney who pleaded the cause of his client; an advocate.

PLAIN STATEMENT Is one that may be readily understood, not merely by law- yers, but by all who are sufficiently ac- quainted with the language In which it la written. Mann v. Morewood, 5 Sandf. (N. Y.) 557, 584.

5e apparatus — Not carried into the 5th edition (1979).

## PLAINT.

In English pr notice . A pri- vate memorial tendered In open court to the judge, wherein the party injured seta forth his cause of action. A proceeding in inferior courts by which an action Is com menced without original writ. 3 Bl. Comm. 873. This mode of proceeding Is commonly adopted In cases of replevin. 3 Steph. Comm. 666.

In the civil law. A complaint; a form of action, particularly one for setting aside a testament alleged to be invalid. This word Is the English equivalent of the Latin “ que- rela.”

5e apparatus — Not carried into the 5th edition (1979).

## PLAINTIFF.

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A person who brings an action ; the party *ho complains or sues In a personal action and is so named on the record. Gulf, etc., R. Co. v. Scott (Tex. Civ. App.) 28 S. W. 458; Canaan v. Greenwoods Turnpike Co., 1 Conn. l.

— Plaintiff la error. The party who sues out a writ of error to review a judgment' or other proceeding at law.— Use plaintiff. One for whose use (benefit) an action is brought in the name of another. Thus, where the assign- ee of a chose in action is not allowed to sue in his own name, the action would be entitled “A. B. (the assignor) for the use of C. D. (the assignee) against E. F." In this case,

C. D. is called the “use plaintiff.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 17(a) — real party in interest]**

The entry's 'use plaintiff' — the action brought in the assignor's name for the assignee's benefit, where the assignee could not sue in his own name — is the old device that the real-party-in-interest rule modernized: actions must now be prosecuted in the name of the real party in interest.

Why: Genuine: the 'use plaintiff' is exactly what Rule 17(a) replaced. Direct, confident.

## PLAN.

A map, chart, or design; being a delineation or projection on a plane sur- face of the ground lines of a house, farm, street, city, etc., reduced in absolute length, but preserving their relative positions and proportion. Jenney v. Des Moines, 103 Iowa, 347, 72 N. W. 550; Wetherill v. Pennsyl- vania R. Co., 195 Pa. 156, 45 Atl. 658.

5e apparatus — Carried into the 5th edition (1979).

## PLANT.

The fixtures, tools, machinery, and apparatus which are necessary to carry on a trade or business. Wharton. South- ern Bell Tel. Co. v. D’Alemberte, 89 Fla. 25, 21 South. 570; Sloss-Sheffleld Steel Co. v. Mobley, 139 Ala. 425, 36 South. 181 ; Max- well v. Wilmington Dental Mfg. Co. (C. C4 77 Fed. 941.

5e apparatus — Not carried into the 5th edition (1979).

## PLANTATION.

La English law. A

colony ; an original settlement in a new country. See 1 Bl. Comm. 107.

In American law. A farm; a large cul- tivated estate. Used chiefly In the south- ern states.

In North Carolina, “plantation” signifies the land a man owns which be is cultivating more or less In annual crops. Strictly, it designates the place planted ; but in wills it is generally used to denote more than the inclosed and cultivated fields, and to take in the necessary woodland, and, indeed, commonly all the land forming the parcel or parcels under culture as one farm, or even what is worked by one set of hands. Stowe v. Davis, 32 N. C. 431.

PLAT, or PLOT. A map, or representa- tion on paper, of a piece of land subdivided into lots,

with streets, alleys, etc., usually drawn to a scale. McDaniel v. Mace, 47

Iowa, 510; Burke v. MOCowen, 115 Cal. 481, 47 Pae. 367.

5e apparatus — Carried into the 5th edition (1979).

## PLAY-DEBT.

Debt contracted by gam- ing.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the historic rule that gaming and wagering contracts are unenforceable]**

A debt contracted by gaming carries the historic legal consequence that wagering contracts are unenforceable.

Why: Genuine: the entry defines the gaming debt; unenforceability is its classic legal consequence. Kept loose; no statute pinpoint invented.

## PLAZA.

A Spanish word, meaning a ' public square In a city or town. Sachs v. Towauda, 79 111. App. 441.

5e apparatus — Not carried into the 5th edition (1979).

## PLEA.

Is old English law. A suit or action. Thus, the power to “hold pleas” Is the power to take cognizance of actions or suits ; so “common pleas” are actions or suits between private persons. And this meaning of the word still appears in the modem declarations, where it is stated, e. g., that the defendant “has been summoned to answer the plaintiff in a plea of debt.”

Za eommon-law practice. A pleading; any one in the series of pleadings. More particularly, the first pleading on the part of the defendant. In the strictest sense, the answer which the defendant in an action at law makes to the plaintiff’s declaration, and in which he sets up matter of fact as de- fense, thus distinguished from a demurrer, which interposes objections on grounds of law.

Xn equity. A special answer showing or relying upon one or more things as a cause, why the suit should be either dismissed or delayed or barred. Mitf. Eq. PI. 219; Coop. Eq. PI. 223.

A short statement, in response to a bill in equity, of facts which, if inserted in the bill, would render it demurrable ; while an answer is a complete statement of the defendant’s case, and contains answers to any interrogatories the plaintiff may have administered. Hunt, Eq. pt 1, c. 3.

—Affirmative plea. One which sets up a single fact, not apnearing in the bill, or sets up a number of circumstances all tending to establish a single fact, which fact, if existing, destroys the complainant's case. Potts v. Potts fN. J. Ch.) 42 Atl. 1055.— Anomalous plea. One which is partly affirmative and partly neg- ative. Baldwin v. Elizabeth. 42 N. .T. Eq. 11, 6 Atl. 275; Potts v. Potts (N. J. Ch.) 42 Atl. 1055.— Bad plea. One which is unsound or

insufficient in form or substance, or which does not technically answer or correspond with the pleading which preceded it in the action.— Com- mon pleas. Common causes or suits; civil actions brought and prosecuted between sub- jects or citizens, as distinguished from pleas of the crown or criminal cases.— Counter- plea. A plea to some matter incidental to the main object of the suit, and out of the direct line of pleadings. In the more ancient system of pleading, counter-plea was applied to what was, in effect, a replication to aid prayer, (q. r. ;) that is, where a tenant for life or other limited interest in land, having an action brought against him in respect to the title to such land, prayed in aid of the lord or rever- sioner for his better defense, that which the de- mandant alleged against either request was called a “counter-plea.” Cowell.— Dilatory pleas. See Dilatory.— Double plea. One having the- technical fault of duplicity; one consisting of several distinct and independent matters alleged to the same point and requiring different answers, — False plea. A sham plea. See infra. And see People v. McCumher. 18 N. Y. 321, 72 Am. Dec. 515; Pierson v. Evans, 1 Wend. (N. Y.) 30.— Foreign plea. A plea objecting to the jurisdiction of a judge, on the ground that he had not cognizance of the subject-matter of the suit. Cowell.— Neg- ative plea. One which does not undertake to answer the various allegations of the bill, but specifically denies some particular fact or matter the existence of which is essential to entitle the complainant to any relief. See Potts v. Potts (N. J. Ch.) 42 Atl. 1056. — Peremptory pleas. “Pleas in. bar” are so termed in con- tradistinction to that class of pleas called “dil- atory pleas.” The former, viz., peremptory pleas, are usually pleaded to the merits of the action, with the view of raising a material issue between the parties; while the latter class, viz., dilatory pleas, are generally plead- ed with a view of retarding the plaintiff’s pro- ceedings, and not for the purpose of raising anr issue upon which the parties may go to trial and settle the point in dispute. Peremptory pleas are also called “pleas in bar,” while dil- atory pleas are said to be in abatement only. Brown.— Plea In abatement. In practice. A plea which goes to abate the plaintiff’s ac- tion; that is, to suspend or put it off for the present. 3 Bl. Comm. 801; Hurst v. Everett (G. C.) 21 Fed. 221 ; Wilson », Winchester A

P. R. Co. (C. O.) 82 Fed. 18; Middlebrook v. Ames, 5 Stew. A P. (Ala.) 166.— Plea In bar. In practice. A plea which goes to bar the plaintiff’s action; that is. to defeat it absolutely and entirely. 1 Bun-ill, Pr. 162 ; 3 Bl. Comm. 303; Rawson v. Knight, 71 Me. 102; Norton v. Winter, 1 Or. 48. 62 Am. Dec. 297 ; Wilson v. Knox County, 132 Mo. 387, 34 S. W. 45.— Plea In dlsonarge. One which admits that the plaintiff had a canae of action, but shows that it was discharged by some subsequent or collateral matter, as, payment or accord and satisfaction. Nichols v. Cecil. 106 Tenn. 455, 61 S. W. 768.— Plea In reconvention. In the civil law. A plea which sets up. new mat- ter, not in defense to the action, but by way of cross-complaint, set-off, or counterclaim.-* Plea of release. One which admits the cause, of action, but sets forth a release subsequently executed by the party authorized to release the claim. Landis v. Morrissey, 69 Cal. 83, 10 Pae. 258.— Plea side. The plea side of a court is that branch or department of the court which entertains or takes cognizance of civil actions and suite, as distinguished from its criminal or crown deonrtment. Thus the court of

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king s bench is said to have a plea side and a crown or criminal side; the one branch or department of it being devoted to the cognizance of civil actions, the other to criminal proceed- ings and matters peculiarly concerning the crown. So the court of exchequer is said to have a plea side and a crown side; the one being appropriated to civil actions, the other to matters of revenue. Brown.— Pleas of the crown. In English law. A phrase now em- ployed to signify criminal causes, in which the king is a party. Formerly it signified royal causes for offenses of a greater magnitude than mere misdemeanors.— Pleas roll. In English practice. A record upon which are entered all the pleadings in a cause, in their regular order, and the issue.— Pure plea. In equity pleading. One which relies wholly on some matter outside those referred to in the bill : as a plea of a release on a settled ac- count.—Sham plea. A false plea ; a plea of false or fictitious matter, subtly drawn so as to entrap an opponent, or create delay. 3 Chit. Pr. 729, 730. A vexatious or false de- fense, resorted to under the old system of plead- ing for purposes of delay and annoyance. Steph. PI. 383. Mr. Chitty defines sham pleas to be pleas so palpably and manifestly untrue that the court will assume them to be so; pleas manifestly absurd. When answers or- defenses admit of lawyer-like argument, such

w courts Should listen to, they a're not "sham,” in the sense of the statute. When, it needs argument to prove that an answer or demurrer ia frivolous, it is not frivolous, and should not be' stricken off. To warrant this summary mode' of disposing of a defense,, the mere read- ing of the pleadings should be sufficient to dis- close, without deliberation and without a doubt, that the defense is sham or irrelevant. * Cottrill v. Cramer, 40 Wis. . 559.— Special plea. A special kind of plea in bar, distinguished by this name from the general issue, and consisting usually of some new affirmative matter, though- it may also be in the form of a traverse or de- nial. See Steph. PI. 52, 162; Allen v. New Haven & N. Co., 49 Oonn. 245. — Special plea la bar. One which advances new matter. It differs from the general, in this; that the latter, denies some- material allegation, but nev- es advances' new matter. Gould, PI. c. 2, § 38.

5e apparatus — Carried into the 5th edition (1979).

## PLEAD.

To make, deliver, or file any pleading; to conduct the pleadings in a cause. To Interpose any pleading in a suit which contains allegations of fact; in this sense the word is the antithesis of “demur." More particularly, to deliver in a formal manner the defendant’s answer to the plain- tiff's declaration, or to the Indictment, as the case may be.

To appear as a pleader or advocate In a cause; to argue a cause in a court of jus- tice. But this meaning of the word is not technical, but colloquial.

—Plead a statute. Pleading a statute is stating the facts which bring the case. within it ; and “counting” on it, in the strict language of. pleading, is making express reference to it by apt terms to show the source of right relied on. McCullough v. Colfax County, 4 Neb. HJnof.) 543, 95 N. W. 31.— Plead iasuably. This means to interpose such a plea as is cal- culated to raise a material issue, either of law or of fact.— Plead over. To pass over, or omit to notice,

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a material allegation in the last pleading of the opposite party ; to pass by a defect m the pleading of the other party with- out- taking advantage of it. In another sense, to plead the general issue, after one has inter- posed a demurrer or special plea which has been dismissed by a judgment ox respondeat ouster. —Plead to tbe merits. This is a phrase of long standing and accepted usage id the law, and distinguishes those pleas which answer the cause of action and on which a trial may be had from all pleas of a different character. Kahn v. Gunnison, 12 Wis. 529.

5e apparatus — Carried into the 5th edition (1979).

## PLEAD ED.

Alleged or averred, in form, In a Judicial proceeding.

It more often refers to matter of defense, but not invariably. To say that matter in a declaration or replication is not well pleaded would not be deemed erroneous. Abbott

5e apparatus — Not carried into the 5th edition (1979).

## PLEADER.

A person whose business it Is to draw pleadings. Formerly, when plead- ing at common law was a highly technical and difficult art, there was a class of men known as “special pleaders not at the bar,” who held a position Intermediate between counsel and attorneys. The class Is now al- most extinct and the term “pleaders” is generally applied, in England, to junior mem- bers of the common-law bar. Sweet.

—Special pleader. In English practice. A person, whose professional occupation is to give

verbal or written opinions upon statements made verbally or in writing, and to draw pleadings, civil or criminal, and such practical proceedings as may be out of tbe usual course 2 Obit. Pr. 42.

5e apparatus — Carried into the 5th edition (1979).

## PLEADING.

The peculiar science ov system of rules and principles, established In the common law, according to which the pleadings or responsive allegations of liti- gating parties are framed, with a view to preserve technical propriety and to produce a proper issue.

The process performed by the parties to a suit or action, in alternately presenting written statements of their contention, each responsive to that which precedes, and each serving to narrow the field of controversy, until there evolves a single point, affirmed on one side and denied on the other, called the “Issue," upon which they then go to triaL

The act or step of interposing any one of the pleadings in a cause, but particularly one on the part of the defendant ; and, in the strictest sense, one which sets up allegations of fact in defense to the action.

The name “a pleading” is also given to any one of the formal written statements of accusation or defense presented by the par- ties alternately In an action at law; the ag- gregate of such statements filed in any one cause are termed “the pleadings.”

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• The oral advocacy of a client’s cause In court, by h)s barrister or counsel. Is some- times called “pleading;" but this. Is a popu- lar, rather than technical, use.

In chancery practice. Consists In mak- ing the formal written allegations or state- ments of the respective parties on the rec- ord to maintain the suit, or to defeat It, of which, when contested in matters of fact, they propose to offer proofs, and in matters of law to offer arguments to the court. Story, Eq. Pl. | 4, note.

—Double pleading. This is not allowed ei- ther In the declaration or subsequent pleadings. Its meaning with respect to the former is that the declaration must not, in support of a single demand, allege several distinct matters, by any one of which that demand is sufficiently supported. With respect to the subsequent pleadings, the meaning is that none of them is to contain several distinct answers to that which preceded it: and the reason of the rule in each ease is that such pleading tends to sev- eral issues in resnect of a single claim. Whar- ton.—Special pleading. When the allega- tions tor “pleadings.” as thev are called) of the contending parties in an action are not of the general or ordinary form, but are of a more complex or special character, they are denomi- nated “special pleadings;” and. when a defend- ant pleads a plea of this description, (i. e., a special plea.) -he is said to plead specially, in opposition to pleading the general issue. These terms have given rise to the popular denomina- tion of that science which, though properly called “pleading,” is generally known by tbe name of “special pleading.” Brown. The al- legation of special or new matter in opposition or explanation of the last previous averments on the other side, as distinguished from a direct denial of matter previously alleged by the op- posit# party. Gould, Pl. c. 1, f 13. lit pojuiUi

language, the adroit and plausible advocacy of a client’s case in court. ' Stimson, Law Gloss.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 8(a) — notice pleading]**

The common-law system the entry describes — alternate responsive allegations narrowing to a single issue — was succeeded by notice pleading: a short and plain statement of the claim showing entitlement to relief.

Why: Genuine: the entry describes the old issue-pleading system; Rule 8(a) is its modern successor. PLEA, PLEAD, PLEADED, PLEADER, PLEADINGS left bare as definitional twins.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1853]**

(paraphrase) The interminable Chancery suit Jarndyce v. Jarndyce — generations consumed by pleading in which no proper issue is ever reached — is the archetypal literary portrait of the pleading system and its failure mode, illuminating what the entry's 'system of rules' is for. (paraphrase)

Why: Entry: the system by which litigating parties' allegations are framed 'to produce a proper issue.' Jarndyce is the canonical fictional case of pleading without issue. Paraphrase.

## PLEADINGS.

The pleadings are the formal allegations by the parties of their respective claims and defenses, for the judg- ment of the court. Code Civ. Proc. Cal. 8 420.

The Individual allegations of the respec- tive parties to an action at common law, proceeding from them alternately, in the order and under the distinctive names following: The plaintiff’s declaration, the

defendant’s plea, the plaintiff’s replication, the defendant’s rejoinder, the plaintiff’s sur-rejoinder, the defendant’s rebutter, the plaintiff’s surrebutter; after which they have no distinctive names. Burrill.

The term “pleadings” had a technical and well-defined meaning. Pleadings are written allegations of what is affirmed on .the one side, or denied on the other, disclosing to the court or jury having to try the cause the real matter in dispnte between the parties. Desnoyer v, Hereux, 1 Minn. 17 (Gil. 1).

5e apparatus — Carried into the 5th edition (1979).

### PLEBANTTS.

In old English ecclesiastic- al law. A rural dean. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### PLEBEIAN.

One who is classed among the common people, as distinguished from the nobles.

PLEBE1TY, or PLEBITY. ' The com- mon or meaner sort of people ; the plebeians.

5e apparatus — Not carried into the 5th edition (1979).

## F

### FLEBEYOS.

In Spanish law. Com- mons ; those who exercise any trade, or who cultivate the soil. White, New Recop. b. 1, tit 5, c. 3, S 6, and note.

5e apparatus — Not carried into the 5th edition (1979).

## P

### PLEBIANA.

In old records. A mother church.

5e apparatus — Not carried into the 5th edition (1979).

### PLEBISCITE.

In modern constitutional law, the name "plebiscite" has been given to a vote of the entire people, (that is, the aggregate of the enfranchised individuals composing a state or nation.) expressing their choice for or against a proposed law or en- actment, submitted to them, and which, if adopted, will work a radical change in the constitution, or which is beyond the powers of the regular legislative body. The pro- ceeding is extraordinary, and is generally

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revolutionary in its character; an example of which may be seen in the plebiscites sub- mitted to the French .people by Louis Na- poleon, whereby the Second Empire was es- tablished. But the ■principle of the plebis- cite has been Incorporated in the modern Swiss constitution, (under the name of “ ref- erendum,,") by which a revision of the con- stitution must be undertaken when demand- ed by the vote of fifty thousand Swiss citi- zens. Maine, Popular Govt 40, 96.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: constitutional referenda and the initiative — direct popular votes reserved in state constitutions]**

The extraordinary popular vote on radical constitutional change has its American cognate in the referendum and initiative — popular votes on constitutional and legislative change reserved in state constitutions.

Why: Genuine cognate: the entry defines the plebiscite; the footnote names the American direct-democracy forms. Kept loose; no single-state cite invented.

## PLEBIICITUH.

Lat. In Roman law. A law enacted by the plebs or commonalty, (that is, the citizens, with the exception of

the patricians and senators,) at the request or on the proposition of a plebeian magis- trate, such as a “tribune.” Inst 1, 2, 4.

5e apparatus — Not carried into the 5th edition (1979).

# T

## T.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

## PLEBS.

Lat. In Roman law. The com- monalty or citizens, exclusive of the patri- cians and senators. Inst 1, 2, 4.

5e apparatus — Not carried into the 5th edition (1979).

## PLED ABLE.

L. Fr. That may be brought or conducted ; as an action oj; “plea,” as it was formerly called. Britt, c. 32. . .

5e apparatus — Not carried into the 5th edition (1979).

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## PLEDGE.

In the law of bailment A bailment of goods to a creditor as security for Borne debt or engagement. A bailment or delivery of goods by a debtor to his cred- itor, to be kept till the debt be discharged. Story, Ballm. f 7; Civ. Code La. art 3133; 2 Kent Comm. 577-; Stearns v. Marshy 4 Denio (N. Y.) 229, 47 Am. Dec. 248; Sheridan v. Presas, 18'Misc. Rep.- 180, 41 N. Y. Supp. 451 ; Bank of Rochester v. Jones, 4 N. Yi 507, 55 Am. Dec. 290 ; Eastman v. Avery, 23 Me. 250; Belden v. Perkins, 78 111. 452; Wil- cox v. Jackson, 7 Colo. 521; 4 Pac. 966 ; Glou- cester Bank v. Worcester, Id Pick. ‘(Mass.)' 531 ; Lillenthnl v. Ballou, 125 Cal. T83, 57 Pac. 897.

Pledge is a deposit of personal property by way of sechrlty for the performance of anoth* er act Civ. Code Cal. | 2986.

The specific article delivered to the cred- itor in security is also called a “pledge” or “pawn.” " :

There is a clear distinction between mortgages and pledges. In a pledge the legal title remains in the pledgor; in a mortgage it passes to the mortgagee. In a mortgage the mortgagee need not have possession; in a pledge the pledge^ must have possession, though it be only con- structive. In a mortgage, at common law, the property on non-payment of the debt passes wholly to the mortgagee ; In a pledge the prop- erty is sold, and only so much of the proceeds as will pay his debt passes to the pledgee. A mortgage is a conditional conveyance Of prop1- erty, which becomes absolute unless redeemed at a specified time. A pledge is not strictly a con- veyance at all, nor need any day of redemption be appointed for it. A mortgagee can sell anq deliver the thing mortgaged, subject only to the right of redemption. A pledgee cannot sell and deliver .his pawn until the debt is due and payment denied. Bouvier. ,

There are two varieties of the contract of pledge known to the law of Louisiana, viz., pawn and antichresis; the former relatlifg to chattel securities, ■ the latter to landed se- curities. See Civ. Code La. art. 3101; and see those titles.

— Pledges of prosecution. In old English law. No person conld prosecute a civil action without having in the first stage of it two or more persons as pledges of prosecution ; and if judgment was .given against the plaintiff, or he deserted his suit, both he and his pledges were liable to amercement to the king pro falso cla- more. In the course of time, however, these pledges were disused, and the names of ficti- tious persons substituted for them, two ideal persons. John Doe and Richard Roe, having become the common pledges of every suitor; and now the use of such pledges is altogether.

discontinued. Brown.— Pledges to restore. In England, before the plaintiff in foreign at- tachment can issue execution against the prop- erty in the hands of the garnishee, he must find “pledges to restore,” consisting of two householders, who enter into a recognizance for the restoration of the property, as a security for the protection of the defendant ; for, as the plaintiffs debt is not proved in any stage of the proceedings, the court guards the rights of the absent defendant by taking security on his behalf, so that if he should afterwards

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disprove the plaintiff’s claim he may obtain restitution of the property attached. Brand. For. Attachm. 93 ; Sweet.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Francis Bellamy, "Pledge of Allegiance", 1892]**

'I pledge allegiance to my Flag' — Bellamy's 1892 original opening gives the solemn-vow sense of pledge: a binding engagement of faith, the civic counterpart of the entry's 'security for some debt or engagement.'

Why: The entry's bailment sense meets the broader vow sense in 'engagement.' Bellamy's original wording is verbatim-certain; the modern 'Flag of the United States of America' wording was deliberately avoided (version-drift...

## PLEDGEE.

The party to whom goods are pledged, or delivered iu pledge. Story, Bailm. | 287.

5e apparatus — Carried into the 5th edition (1979).

## PLEDGERY.

Suretyship, or an under- taking or answering for another. Gloucester Bank v. Worcester, lu Pick. (Mass.) 53L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Statute of Frauds suretyship provision (29 Car. II c. 3)]**

Suretyship — answering for another's debt or engagement — is governed by the Statute of Frauds' signature formality: a special promise to answer for the debt of another must be in writing.

Why: Genuine: the entry defines suretyship; the suretyship clause is the formality rule governing exactly this undertaking. Direct.

## PLEDGOR.

The party delivering goods in pledge ; the party pledging. Story, Bailm. | 287.

5e apparatus — Not carried into the 5th edition (1979).

## PLEGIABILI8.

In old English law. That may be pledged ; the subject of pledge «r security. Fleta, lib. 1, c. 20, | 88.

5e apparatus — Not carried into the 5th edition (1979).

## PLEGU DE PROBEQUENDO.

Pledges to prosecute with effect an action of replevin.

5e apparatus — Not carried into the 5th edition (1979).

## PLEGU DE RETORN O HABENDO.

Pledges to return the subject of distress, should the right be determined against the party bringing the action of replevin. 8 Steph. Comm. (7th hid.) 422n.

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5e apparatus — Not carried into the 5th edition (1979).

## PLEGUS AOQUXET VNDIB.

A writ that anciently lay for a surety against him for whom he was surety, if he paid not the money at the day. Fltssh. Nat. Brev. 137.

5e apparatus — Not carried into the 5th edition (1979).

## PLENA JETAS.

Lat. In old English law. Full age.

Plena et eelerii jus title flat parti bus.

4 Inst 67. Let full and speedy justice be done to the parties.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the age of majority — 18 in most jurisdictions; cf. U.S. Const. amend. XXVI]**

'Full age' is the age of majority — 18 in most American jurisdictions for most purposes, the voting age fixed at 18 by the Twenty-sixth Amendment.

Why: Genuine: the entry defines full age; the footnote states the modern rule. Framed as the modern rule rather than trivia.

## PLENA FORISFACTURA.

A forfeiture of all that one possesses.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3, cl. 2]**

Forfeiture of all one possesses — the old consequence of attainder — is barred in its corruption-of-blood form: attainder of treason shall not work corruption of blood, nor forfeiture beyond the life of the person attainted.

Why: Genuine: the entry defines total forfeiture; the clause is the constitutional limit on exactly that. Direct.

## PLENA PROBATIO.

In the civil law. A term used to signify full proof, (that is, proof by two witnesses,) in contradistinction to semi-plena probatio, which is only a pre- sumption. Cod. 4, 19, 6.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3, cl. 1 — conviction of treason on the testimony of two witnesses to the same overt act]**

Full proof — proof by two witnesses, as against mere presumption — survives in American law as the two-witness rule for treason.

Why: Genuine: the entry defines plena probatio as proof by two witnesses; the treason clause preserves that rule. Direct.

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth:

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at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: Plena probatio is full proof — proof by two witnesses, as opposed to mere presumption. The verse is the Mosaic two-witness rule itself: the matter established at the mouth of two or three witnesses. Filed as God's spo...

# F

**FLENARTY.**

In English law. Fullness ; a state of being full. A term applied to a benefice When full, or possessed by an incum- bent. The opposite state to a vacation, or vacancy. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# P

**PLENARY.**

Full ; entire ; complete ; un- abridged.

In the ecclesiastical courts, (and in admi- ralty practice,) causes are divided into plenary and summary. The former are those In whose proceedings the order and solemnity of the law is required to be exactly observed, so that if there is the least departure from that order, or disregard of that solemnity, the whole proceedings are annulled. Summary causes are those In which It Is unnecessary to pursue that order and solemnity. Brown. —Plenary confession. A full and complete confession. An admission or confesssion, wheth- er in civil or criminal law, is said to be “ple- nary” when it is, if believed, conclusive against the person making It. Best, Ev. 664; Rose. Crim. Ev. 39.

5e apparatus — Carried into the 5th edition (1979).

# F

**FLENE.**

Lat Completely; fully; suffi- ciently.

— Plene administravit. _ In practice. A plea by an executor or administrator that he has fully administered all the assets that have come to his hands, and that no assets remain out of which the plaintiff’s claim could be satisfied.— Plene administravit prater. In practice. A plea by an executor or administrator that he has “fully administered” all the assets that have come to his hands, “except” assets to a certain amount, which are not sufficient to satis- fy the plaintiff. 1 Tidd. Pr. 644.— Plene oosn- putavit. He has fully accounted. A plea in an action of account render, alleging that the defendant has fully accounted.

5e apparatus — Not carried into the 5th edition (1979).

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# P

## PLENIPOTENTIARY.

One who has full power to do a thing ; a person fully commis- sioned to act for another. A term applied in international law to ministers and en- voys of the second rank of public ministers. Wheat Hist Law Nat 266.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Vienna Convention on Diplomatic Relations (1961) — classes of diplomatic agents]**

The plenipotentiary — the fully commissioned minister of the second rank — belongs to the classified system of diplomatic agents codified in modern diplomatic law.

Why: Genuine: the entry defines the diplomatic rank; the Convention codifies the classification. Kept loose.

## PLENUM  DOMINIUM.

Lat In the

civil law. Full ownership; the property In a thing united with the usufruct Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PLEYTO.

In Spanish law. The plead- ings in a cause. White, New Recop. b. 8, tit. 7.

5e apparatus — Not carried into the 5th edition (1979).

## PLIGHT.

In old English law. An estate, with the habit and quality of the land ; ex- tending to a rent charge and to a possibility of dower. Co. Litt 2216; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PLOK-PENNIN.

A kind of earnest used in public sales at Amsterdam. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PLOTTAGE.

A term used In appraising land values and particularly in eminent do- main proceedings, to designate the addition- al value given to city lots by the fact that they are contiguous, which enables the owner to utilize them as large blocks of land. See In re Armory Board, 73 App. Dlv. 152, 76

N. Y. Supp. 766.

5e apparatus — Carried into the 5th edition (1979).

## PLOW-ALMS.

The ancient payment of a penny to the church from every plow-land. 1 Mon. Angl. 256.

5e apparatus — Not carried into the 5th edition (1979).

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## PLOW-BOTE.

An allowance of wood which tenants are entitled to, for repairing their plows and other implements of hus- bandry.

5e apparatus — Not carried into the 5th edition (1979).

## PLOW-LAND.

A quantity of land “not of any certain content, but as much as a plow can, by course of husbandry, plow In a year.” Co. Litt. 69a.

5e apparatus — Not carried into the 5th edition (1979).

## PLOW-MONDAY.

The Monday after twelfth-day.

5e apparatus — Not carried into the 5th edition (1979).

## PLOW-SILVER.

Money formerly paid by some tenants, in lieu of service to plow the lord’s lands.

5e apparatus — Not carried into the 5th edition (1979).

## PLUMBATURA.

Lat. In the civil law. Soldering. Dig. 6, 1, 23, 5.

5e apparatus — Not carried into the 5th edition (1979).

## PLUMBUM.

Lat. In the civil law. Lead. Dig. 50, 16, 242, 2.

PLUNDER, v. The most common mean- ing of the term “to plunder” Is to take prop- erty from persons or places by open force, and this may be in course of a lawful war, or by unlawful hostility, as In the case of pi- rates or banditti. But in another and very common meaning, though in some degree fig- urative, it is used to express the Idea of taking property from a person or place, with- out just right, but not expressing the nature or quality of the wrong done. Carter v. An- drews, 16 Pick. (Mass.) 9; U. S. v. Stone (C. C.) 8 Fed. 246; U. S. v. Pitman, 27 Fed Cas. 540.

PLUNDER, ». Personal property belong- ing to an enemy, captured and appropriated on land ; booty. Also the act of seizing such property. See Booty: Pbize.

PLUNDERAGE, in maritime law. The embezzlement of goods on board of a ship is so called

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PLURAL.

Containing more than one; consisting of or designating two or more. Webster.

—Plural marriage. See Marriage.

Pluralia nnmemis eat daobns conten- tua. 1 Rolle, 476. The plural number Is satisfied by two.

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5e apparatus — Not carried into the 5th edition (1979).

## PLURALIST.

One that holds more than one ecclesiastical benefice, with cure of souls.

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## PLURALITER.

In the plural. 10 East, 158, arg.

5e apparatus — Not carried into the 5th edition (1979).

## PLURALITY.

In the law of elections. The excess of the votes cast for one candi- date over those cast for any other. Where there are only two candidates, he who re- ceives the greater number of the votes cast is said to have a majority; when there are more than two competitors for the same of- fice, the person who receives the greatest number of votes has a plurality, but he has not a majority unless be receives a greater

number of votes than those cast for all his competitors combined.

In ecclesiastical law, “plurality” means the- holding two, three, or more benefices by the same incumbent; and he is called a “plural- ist.” Pluralities are now abolished, except In certain cases. 2 Steph. Comm. 691,' 692.

Plures cohee redes sunt quasi unum corpus propter unitatem juris' quod ha- bent. Co. Lite 163. Several' co-h'eirs are. as it were, one body, by reason of the unity of right which they possess, , .

Plures participes aunt quasi unum cor- pus, in eo quod unum jus jiabent. C?,- Litt 164. Several parceners, are as opq body,. In that they have one right , ,

.... , UV l

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PLURIES.

Lat Often ; frequep.yy. When an original and alios writ have been issued and proved ineffectual, a third writ called a “pluries writ” may frequently . be Issued. It is to the same effect as the two former, except that it contains the words, "as we have often commanded you,” ("sivut pluries prmcepimus”) after the usual com- mencement “We command, you.” 8 Bl. Comm. 283; Archb. Pr. 585.

5e apparatus — Not carried into the 5th edition (1979).

## PLURIS PETITIO.

Lat In Scotch practice. A demand of more than la due.- Bell.

Plus exempla quum peccuta nooeat.

Examples hurt more than crimes.

Plus pcccut author quum actor. The

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originator or Instigator of a crime is a worse offender than the actual perpetrator of It 5 Coke, 99a. Applied to the crime of suborna- tion of perjury. Id.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 3:13, KJV]**

And he said unto them, Exact no more than that which is appointed you.

Why: Pluris petitio is the demand of more than is due. The verse forbids the publicans to exact more than appointed — the same wrong in its scriptural form. John's speech, not deity speech — no flag. PLUS PETITIO left bare...

## PLUS PETITIO.

In Roman law. A phrase denoting the offense of claiming more than was just in one’s pleadings. Thib mortj might be claimed In four different respects; viz.; (1) Re, i. e., In amount, (e. g., £50 for £5;) (2) loco, i. e., in place, (e. g„ delivery at some place more difficult to effect than the place specified;) (3) tempore, i. e., in time; (e. a ., claiming payment on the 1st of Au- gust of what is not due till the 1st of Septem- ber;) and (4) causa, i. e., in quality, (e. g., claiming a dozen of champagne, when the con- tract was only for a dozen of wine generally.) Prior to Justinian’s time, this offense was in general fatal to the action ; but, under, the legislation of the emperors Zeno and Justin- ian, the offense (if re, loco, or causa) exposed the party to the payment of three times the damage, if any, sustained by the other side, and (if tempore ) obliged him to postpone his action for double the time, and to pay the costs of his first action before commencing a second. Brown.

Plus valet eonsuetudo quam eoneeario.

Custom is more powerful than grant.

Pina valet anna oenlatna teatla qnam anrlti deeem. One eye-witness is of more weight than ten ear-witnesses, [or those who speak from hearsay.] 4 Inst. 279.

Pina vident oeall qnam oonlna. Sever- al eyes see more than one. 4 Inst. 160.

5e apparatus — Not carried into the 5th edition (1979).

## PO.

LO. BUO. An old abbreviation for the words “ponit loco suo,” (puts in his place,) used in warrants of attorney. Townsh. PI. 431.

5e apparatus — Carried into the 5th edition (1979).

## POACH.

To steal game on a man's land.

5e apparatus — Carried into the 5th edition (1979).

## POACHING.

In English criminal law. The unlawful entry upon land for the pur- pose of taking or destroying game ; the tak- ing or destruction of game upon another's land, usually committed at night Steph. Grim. Law 119, et seq. ; 2 Steph. Comm. 82.

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5e apparatus — Carried into the 5th edition (1979).

## POBLADOR.

In Spanish law. A col- onizer ; he who peoples ; the founder of a col- ony.

5e apparatus — Not carried into the 5th edition (1979).

## POCKET.

This word Is used as an adjec- tive in several compound legal phrases, carry- ing a meaning suggestive of, or analogous to, its signification as a pouch, bag, or secret receptacle. For these phrases, see “Bor- ough,”- “Judgment" “Record,” “Sheriff,” and “Veto.”

5e apparatus — Not carried into the 5th edition (1979).

## PASHA.

Lat Punishment; a penalty. Inst 4, 6, 18, 19.

— P«uu eorporalis. Corporal punishment.— Poena plllorallS. In old English law. Pun- ishment of the pillory. Fleta, lib. 1, c. 38, f 11.

Poena ad pauoos, metns ad o sines per- venlat. If punishment be Inflicted on a few, a dread comes to all.

Poena «z delicto defunct! hares te- neri non debet. The heir ought not to be bound by a penalty arising out of the wrong- ful act of the deceased. 2 Inst. 19S.

Poena non potest, cnlpa perennls ertt.

Punishment cannot be, crime will be, per- petual. 21 Vin. Abr. 271.

Poena snos tenere debet aotores et non alios. Punishment ought to bind the guilty, and not others. Bract, fol. 3806.

Poena potlus molllenda qnam exas- paranda sunt. 3 Inst. 220. Punishments should rather be softened than aggravated.

Poena sint restrlngenda. Punishments should be restrained. Jenk. Cent. 29.

PaUfALIS. Lat. In the civil law. Pen- al; imposing a penalty; claiming or en- forcing a penalty. Actiones peenales, penal actions. Inst 4, 6, 12.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 6:23, KJV]**

For the wages of sin is death; but the gift of God is eternal life through Jesus Christ our Lord.

Why: Poena is punishment, penalty — the legal concept of penal desert. The verse states the penalty principle in its archetypal form: wrongdoing earns its wage. Paul's teaching, not deity speech — no flag.

## PCENITENTXA.

Lat In the civil law. Repentance; reconsideration; changing one’s

mind ; drawing back from an agreement al- ready made, or rescinding it

—Locus poenltcntia. Room or place for re- pentence or reconsideration ; an opportunity to withdraw from a negotiation before finally con- cluding the contract or agreement. Also, in

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criminal law, an opportunity afforded by the circumstances to a person who has formed an intention to kill or to commit another crime, giving him a chance to reconsider and relinquish his purpose.

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**[Law] — Law**

**[Law: Model Penal Code § 5.01(4) — renunciation of criminal purpose]**

Locus poenitentiae — room to reconsider and withdraw before the contract is concluded, or before the intended crime is committed — survives in criminal law as renunciation: voluntary and complete withdrawal from an inchoate crime is a defense.

Why: Genuine: the entry defines locus poenitentiae in both senses; MPC § 5.01(4) is the modern criminal-law form. Kept in loose form.

## POINDING.

The process of the law of Scotland which answers to the distress of the English law. Poinding is of three kinds:

Real poinding or poinding of the ground. This is the action by which a creditor, having a security on the land of his debtor, is ena- bled to appropriate the rents of the land, and the goods of the debtor or bis tenants found thereon, to the satisfaction of the debt - Personal poinding. This consists in the seizure of the goods of the debtor, which are sold under the direction of a court of justice, and the net amount of the sales paid over to the creditor in satisfaction of his debt ; or, if no purchaser appears, the goods themselves are delivered.

Poinding of stray cattle, committing dep- redations on corn, grass, or plantations, un- til satisfaction is made for the damage. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## POINT.

A distinct proposition or ques- tion of law arisiug or propounded in a case.

— Point reserved. When, in the progress of the trial of a cause, an important or difficult point of law is presented to the court, and the court is not certain of the decision that should be given, it may reserve the point, that is, de- cide it provisionally as it is asked by the par- ty, but reserve its more mature considera- tion for the hearing on a motion for a new trial, when, if it shall appear that the first ruling was wrong, the verdict will be set aside. The point thus treated is technically called a “point reserved.”— Points. The distinct propositions of law, or chief heads of argument, presented by a party in his paper-book, and relied upon on the argument of the cause. Also the marks used in punctuation. Duncan v. Kobler, 37 Minn. 379, 34 N. W. 594 ; Commonwealth Ins. Co. v. Pierro, 6 Minn. 570 (Gil. 404).

5e apparatus — Carried into the 5th edition (1979).

## POISON.

In medical Jurisprudence. A substance having an Inherent deleterious property which renders it, when taken into the system, capable of destroying life. 2 Wbart. & 8. Med. Jur. i

1.

A substance -which, on being applied to the human body, internally or externally, is capable of destroying the action of the vital functions, or of placing the soilils and fluids in such a state as to prevent the continuance of life. Wharton. See Boswell v. State, 114 Ga. 40, 39 S. E. 897 ; People v. Van Deleer, 53 Cal. 148; Dougherty v. People, 1 Colo. 514; State v. Slagle, 83 N. C. 630; United States Mut. Acc. Ass’n v. Newiuan, 84 Va. 52. 3 S. E. 805.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Bell Biv DeVoe, 'Poison', 1990]**

Poison / Never trust a big butt and a smile

The legal entry defines poison as a substance of inherent deleterious property that destroys life. The track is literally a treatise on poison in human form — a deceptively sweet betrayal that kills — the same structure: harm masked as harmlessness.

Why: Added as a genuine metaphoric extension of the legal/toxicological concept: the song's title is the legal term, and its content (a seductive destroyer) maps exactly onto 'inherent deleterious property'. Borderline by...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

(paraphrase) Claudius murders King Hamlet by pouring poison into his ear as he sleeps — the most famous fictional poisoning in English drama, a murder-by-poison case in miniature against the entry's medical-jurisprudence definition. (paraphrase)

Why: Entry: a substance capable of destroying life. Hamlet's ear-poisoning is the canonical fictional instance. Paraphrase; no quote attempted.

## POLE.

A measure of length, equal to five yards and a half.

5e apparatus — Carried into the 5th edition (1979).

## POLICE.

Police is the function of that branch of the administrative machinery of government which is charged with the pres- ervation of public order and tranquillity, the promotion of the public health, safety, and morals, and the prevention, detection, and punishment of crimes. See State v. Hlne. 58 Conn. 50, 21 Atl. 1024, 10 L. R. A. 83 ; Monet v. Jones, 10 Smedes & M. (Miss.) 247; Peo- ple v. Squire, 107 N. Y. 583, 14 N. E. 820, 1 Am. St Rep. 883; Logan v. State, 5 Tex. App. 314.

The police of a state, in a comprehensive sense, embraces its whole system of internal regulation, by which the Btate seeks not only to preserve the public order and to prevent offenses against the state, but also to establish for the intercourse of citizen with citizen those rules of good manners and good neighborhood which are calculated to prevent a conflict of rights, and to insure to each the uninterrupted enjoyment of his own, so far as is reasonably consistent with a like enjoyment of rights by Others. Cooley, Const. Lim. *572.

It is defined by Jeremy Bentham in his works: “Police is in general a system of precaution, either for the prevention of crime or of calam- ities. Its business may be distributed into

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eiyht distinct branches; (1) Police for the prevention of offenses ; (2) police for the prevention of ca- lamities ; (3) police for the prevention, of epi- demic diseases ; (4) police of charity ; (5) police of interior communications ; (6) police of public amusements ; (7) police for recent intelligence ; (8) police for registration." Canal Com’rs v. Willamette T-ransp. Co., 6 Or. 222.

—Police court. The name of a kind of in- ferior court in severer of the states, which has a summary jurisdiction over minor offenses and ' misdemeanors of small consequence, and the powerd of a committing magistrate in respect to more seriouB crimes, and. in some states, a limited jurisdiction for the trial of civil causes. In English law. Courts in which stipendiary magistrates, chosen from barristers of a certain standing, sit for the dispatch of business. Their general duties and powers are the same as those or the unpaid magistracy, except that one of them- may usually act in cases which would re- quire to be heard before two other justices.

- Wharton.— Polieo de chargement. Fr. In French law. A bill of lading. Ord. Mar. liv. 3, tit. 2.— Police jury, in Louisiana, is the designation of the board of officers in h. parish corresponding to the commissioners' or super- visors of a county in other states.— Police jus- tice. A magistrate charged exclusively with the duties incident to the common-law office of ..a conservator or justice of the peace ; the pre- . fix “police” serving merely to distinguish them ' from justices having also civil jurisdiction. ' Wenzler v. People. 58 N. Y. 530.— Police mag- istrate. See Magistrate. — Police officer . .One of the staff of men employed in cities and , towns to enforce the municipal police, i. e., the lawa and ordinances for preserving the peace ' and good order of the community. Otherwise ' called “policeman.”— Police power. The pow- er vested in a state to establish laws and ordi- nances for the regulation and enforcement of its police as above defined. The power vested in ’ the legislature to make, ordain, and establish all manner of wholesome and reasonable laws, Statutes, and ordinances, either with penalties or'. without, not repugnant to the constitution, " as they shall judge to be for the good and wel- ' fare of the commonwealth, and of the subjects ‘ of the same. Com. v. Alger, 7 Cush. (Mass.) 85, The police power of the state is an author- ity conferred by the American constitutional ' system upon the individual states, through which they are enabled to establish a special depart- . meat of police; adopt such regulations as tend

to prevent the commission of fraud, violence, or other offenses against the state ; aid in the ar- rest of criminals ; and secure generally the com- fort, health, and prosperity of the state, by pre- serving the public order, preventing a conflict of rights in the common intercourse of the citi- zens, and insuring to each an uninterrupted en- joyment of all the privileges conferred upon him by the laws of his country. Lalor, Pol. Enc. s. v. It is true that the legislation which se- cures to all protection in their rights, and the equal use and enjoyment of their property, embraces an almost infinite variety of subjects. Whatever affects the peace, good order, morals, and health of the community comes within its scope ; and every one must use and enjoy his property subject to the restrictions which such legislation imposes. What is termed the “police power” of the state, which, from the language often

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used respecting it, one would suppose to be an undefined and irresponsible element in government, can only interfere with the conduct of individuals in their intercourse with each other, and in the use of their property, so far as may be required to secure these objects. Munn v. Illinois, 94 U, 8. 145, 24 L. Ed. 77. For other definitions, see Slaughterhouse Cases, 16 Wall. 62. 21 L. Ed. 384; Stone v. Missis- sippi. 101 U. S. 818, 25 L. Ed. 1079 ; Thorpe v. Rutland & B. B. Co., 27 Vt. 140, 62 Am. Dec. 025 ; People v. Steele. 231 111. 340, 83 N.

E. 236. 14 L. R. A. (N. S.) 361, 121 Am. St Rep. 321; Dreyfus v. Boone, 88 Ark. 353, 114

S. W. 718; Carpenter v. Reliance Realty Co., 103 Mo. App. 480, 77 S. W. 1004; State v. Dal- ton, 22 R. I. 77, 46 Atl. 234, 48 L. R. A. 775, 84 Am. St. Rep. 818; Deems v. Baltimore, 80 Md. 164, 30 Atl. 048, 26 L. R. A. 541, 45 Am. St. Rep. 339 ; In re Clark, 65 Conn. 17, 81 Atl. 522, 28 L. R. A. 242; Mathews v. Board of Education. 127 Mich. 530, 80 N. W. 1036, 54 L. R. A. 736.— Polio* regulations. Laws of a state, or ordinances of a municipality, which have for their object the preservation and protection of public peace and good order, and . of the health, morals, and security of the peo-

Sle. State v. Greer. 78 Mo. 194 ; Ex parte tourgeois, 60 Miss. 663. 45 Am. Rep. 420 ; 8o- -nora v. Curtin. 137 Cal. 583, 70 Pac. 674: . Roanoke Gas Co. v. Roanoke, 88 Va. 810. 14

S. E. 665.— Police supervision. In England, subjection to police supervision is where a crim- inal offender is subjected to the obligation of notifying the place of his residence and every change of his residence to the chief officer of ‘ police of the district, and of reporting himself once a month to the chief officer or his substitute. Offenders subject to police supervi- sion are, popularly called “habitual criminals.” Sweet.

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Salus populi suprema lex esto — 'the welfare of the people shall be the supreme law']**

Police as the function charged with public order, health, safety, and morals is the police power — the state's regulatory authority classically justified by the maxim that the welfare of the people shall be the supreme law.

Why: Genuine: the entry defines the police function (public health, safety, morals); the maxim is the classic statement of the police power's justification. Direct.

**[Scripture] — Scripture**

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: Police is the branch charged with preserving public order and the prevention, detection, and punishment of crimes. The verse names that coercive function in its scriptural form — the magistrate bearing the sword as re…

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

Fuck the police, coming straight from the underground / A young nigga got it bad 'cause I'm brown

The legal entry defines police as the branch of the state charged with preserving public order and

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preventing crime. This is the most quoted line in rap about that very institution — naming the policed experience of the police function the entry describes.

Why: Added because the lyric names the police directly as an institution and the relation of the policed to it — a genuine illumination of the legal term's administrative function, not a shared-word coincidence. The line i…

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) Inspector Javert — the relentless agent of detection and pursuit — is the archetypal literary embodiment of the police function the entry defines: 'the prevention, detection, and punishment of crimes.' (paraphrase)

Why: Entry defines police as the function charged with public order and crime prevention/detection/punishment. Javert is the canonical fictional embodiment. Paraphrase.

# O

## OF.

A court established in pursuance of the statutes 43'Eliz. c. 12, and 13 & 14 Car. II. c. 23. Composed of the judge of the admiral- ty, the recorder of Londpn, two doctors of the civil law, two common lawyers, and eight merchants; any three of whom, one being a civilian or a barrister, could determine in a summary way causes concerning policies of assurance in London, with an appeal to ctaan- . eery. No longer in existence. 3 Bl. Comm. 74.

5e apparatus — Carried into the 5th edition (1979).

# P

## POLICY.

The general principles by which a government Is guided In Its manage- ment of public affairs, Or the legislature in Its measures. .

This term, as applied to a law. ordinance, or rule of law, denotes Its general purpose or tendency considered as directed to the

welfare or prosperity of the state or com- munity.

— Policy of a statute. The "policy of a stat- ute,” or "of the legislature,” as applied to a penal or prohibitive statute, means the inten- tion of discouraging conduct of a mischievous tendency. See L. It. 6 P. C. 134; 5 Bam. & Aid. 335; Pol. Cont. 235.— Policy of the law. By this phrase is understood the dis- position of the law to discountenance certain classes of acts, transactions, or agreements, or to refuse them its sanction, because it considers them immoral, detrimental to the public welfare, subversive of good order, or otherwise contrary to the plan and purpose of civil regulations. —Public policy. The principles under which the freedom of contract or private dealings is restricted by law for the good of the community. Wharton. The term “policy," as applied to a statute, regulation, rule of law, course of ac- tion, or the like, refers to its probable effect, tendency, or object, considered with reference

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to the social or political well-being of the state. Thus, certain classes of acts are said to be "against public policy," when the law refuses to enforce or recognize them, on the ground that they have a mischievous tendency, so as to be injurious to the interests of the state, apart from illegality or immorality. Sweet. And see Egerton v. Earl Brownlow, 4 H. L. Cas. 235; Smith v. Railroad Co., 115 Cal. 584, 47 Pac. 582, 35 L. R. A. 309, 56 Am. St. Rep. 119; Tarbell v. Railroad Co., 73 Vt. 347, 51 Atl. 6, 56 L. R. A. 056, 87 Am. St. Rep. 734; Hart- ford F. Ins. Co. v. Chicago, etc., R. Co., 175 U.

S. 91, 20 Sup. Ct. 33, 44 L. Ed. 84; Enders v. Enders. 164 Pa. 206, 30 Atl. 129, 27 L. a

A. 56, 44 Am. St. Rep. 598; Smith v. Du Bose, 78 Ga. 413. 3 S. E. 309, 6 Am. St. Rep. 260; Billingsley v. Clelland, 41 W. Va. 234, 23

S. E. 812.

5e apparatus — Not carried into the 5th edition (1979).

## POLICY OF INSURANCE.

A mercan- tile Instrument In writing, by which one par- ty, In consideration of a premium, engages to Indemnify another against a contingent loss, by making him a payment In compensation, whenever the event shall happen by which the loss Is to accrue. 2 Stepb. Comm. 172.

The written instrument in which a con- tract of insurance is set forth Is called a “policy of insurance.” Civ. Code Cal. f 2586.

— Blanket policy. A policy of fire insurance which contemplates that the risk is shifting, fluctuating, or varying, and is applied to a class of property rather than to any particular article or thing. Insurance Co. v. Baltimore Ware- house Co., 93 U. S. 541 23 L. Ed. 868.- En- dowment policy. In life Insurance. A pol- icy the amount of which is payable to the as- sured himself at the end of a fixed term of

years, if he is then living, or to his heirs or a

named beneficiary- if he shall die sooner.—

Floating policy. A policy of fire insurance

not applicable to any specific described goods, but to any and all goods which may at the time of the fire be in a certain building.— Interest policy. One where the assured has a real, substantial, and assignable interest in the thing insured ; as opposed to a wager policy— Mined policy. A policy of marine insurance in which not only the time is specified for which the risk is limited, but the voyage also is described by its local termini; as opposed to policies of in- surance for a particular voyage, without any limits as to time, and also to purely time pol- icies, in which there is no designation of local termini at all. Mozley & Whitley. And see Wilkins v. Tobacco Ins. Co.. 30 Ohio, 340, 27 Am. Rep. 455.— Open policy. In insurance. One in which the value of the subject insured is not fixed or agreed upon in the policy, aa

between the assured and the underwriter, but is left to be estimated in case of loss. The term is opposed to "valued policy,” in which the value of the subject insured is fixed for the

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purpose of the insurance, and expressed on the face of the policy. Mozley & Whitley. Riggs v. Fire Protection Ass’n, 61 S. C. 448, 39 8.

E. 614; Cox v. Insurance Co., 3 Rich. Inw. 331, 45 Am. Dec. 771 ; Insurance Co. v. But- ler, 38 Ohio St. 128. But this term is also sometimes used In America to describe a policy .in which an aggregate amount is expressed in 'the body of the policy, and the specific amounts and subjects are to be indorsed from time to time. London Assur. Corp. v. Paterson. 106 Ga. 538, 32 S. E. 050.— Paid-up policy. In life insurance. A policy on which no further payments are to be made in the way of annual premiums.— Time policy. In fire insurance, one made for a defined and limited time, as, one year. In marine insurance, one made for a particular period of time, irrespective of the voyage or voyages upon which the vessel may be engaged during that period. Wilkins v. To- bacco Ins. Co., 30 Ohio St. 339. 27 Am. Rep. 455; Greenleaf v. St. Louis Ins. Co., 37 Mo. 29.— Valued policy. One in which the value of the thing insured is settled by agreement be- tween the parties and inserted In the policy. Cushman v. Insurance Co., 34 Me. 491 ; Riggs v. Insurance Co., 61 S. C. 448, 39 S. E. 614 ; Luce v. Insurance Co.. 15 Fed. Cas. 1071.— Voyage policy. A policy of marine insurance effected for a particular voyage or voyages of the vessel, and not otherwise limited as to time. Wilkins v. Tobacco Ins. Co., 30 Ohio St. 339. 27 Am. Rep. 455.— Wager policy. An insur- ance upon a subject-matter in which the party assured has no real, valuable, or insurable in- terest. A mere wager policy is that in which the party assured has no interest In the thing assured, and could sustain no possible loss by the event insured against, if he had not made such wager. Sawyer v. Insurance Co.. 87 Wis. 539; Embler v. Insurance Co., 8 App. Div. 186, 40 N. Y. Supp. 450; Amory v. Gilman, 2 Mass. 1; Gambs v. Insurance Co., 50 Mo. 47.

Polities legibus non leges poll tile adap- t an die. Politics are to be adapted to the laws, and not the laws to politics. Hob. 134.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Uberrima fides — utmost good faith in insurance]**

The insurance policy the entry defines is governed by the signature principle of insurance law: contracts of insurance require the utmost good faith, including the duty of disclosure.

Why: Genuine: the entry defines the policy; uberrima fides is the governing principle of insurance contracts. Direct, no hop.

## POLITICAL.

Pertaining or relating to the policy or the administration of govern- ment, state or national. See People v. Mor- gan, 90 111. 558; In re Kemp, 16 Wls. 396.

—Political arithmetic. An expression some- times used to signify the art of making calcula- tions on matters relating to a nation ; the rev- enues, the value of land and effects; the produce of lands and manufactures; the population, and the general statistics of a country. Wharton. —Political corporation. A public or munic- ipal corporation ; one created for political pur- poses, and having for its object the administra- tion of governmental powers of

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a subordinate or local nature. Winspear v. Holman Dist. Tp., 37 Iowa. 544; Auryansen v. Hackensack Imp. Com'n, 45 N. J. Law. 115: Curry v. District Tp.. 62 Iowa, 102, 17 N. W. 191.— Political economy. The science which describes the methods and laws of the production, distribution, and consumption of wealth, and treats of eco- nomic and industrial conditions and laws, and the rules and principles of rent, wages, capital, la- bor, exchanges, money, population, etc. The sci- ence which determines what laws men ought to adopt in order that they may, with the least pos- sible exertion, procure the greatest abundance of things useful for the satisfaction of their wants, may distribute them justly, and consume them rationally. De Laveleye, Pol. Econ. The sci- ence which treats of the administration of the revenues of a nation, or the management and

regulation of its resource*, and productive prop- erty and. labor. Wharton.— Political law.

That branch of jurisprudence which treats of the science of politics, or the organization and administration of government.— Political lib- erty. See Liberty.— Political sfeaui. As a designation of a class of crimes usually ex- cepted from extradition treaties, this term de- notes crimes which are incidental to and form a part of political disturbances: but it might also be understood to include offenses consist- ing in an attack upon the political order of things established in the country where com- mitted, and even to include offenses committed to obtain any political object. 2 Steph. Crim. Law, 70.— Political office. See Office.— Political questions. Questions of which the courts of justice will refuse to take cognizance, or to decide, on account of their purely political character, or because their determination would involve an encroachment upon the executive or legislative powers ; e. g., what sort of govern- ment exists in a state, whether peace or war exists, whether a foreign country has become an independent state, etc. Luther v. Borden, 7 How. 1, 12 L. Ed. r>81 : Kenneth v. Chambers, 14 How. 38. 14 L. Ed. 316 ; TJ. S. v. 129 Pack- ages, Fed. Cas. No. 15.841.— Political rights. Those which may be exercised in the formation or administration of the government. People v. Morgan, 90 111. 563. Rights of citizens es- tablished or recognised by constitutions which give them the power to participate directly or indirectly in the establishment or administra- tion of government. People v. Barrett, 203 111. 90, 67 N. E. 742. 96 Am. St. Rep. 296 : People v. Washington. 36 Cal. 662; Winnett v. Adams, 71 Neb. 817, 99 N. W. 684.

In the Jurisdiction of the taxing power and within a certain class (as, all males of a cer- tain age, etc.) without reference to his prop- erty or lack of it. See Southern Ry. Co. v.

St. Clair County, 124 Ala. 491, 27 South. 23; Short v. State, 80 Md. 392, 31 Atl. 322, 29 L.

R. A. 404; People v. Ames, 24 Colo. 422, 61 Pac. 426.

5e apparatus — Carried into the 5th edition (1979).

## POLLARDS.

A foreign coin of base met- al, prohibited by St. 27 Edw. I. c. 3, from being brought into the realm, on pain of for- feiture of life and goods. 4 Bl. Comm. 98.

It was computed at two pollards for a ster- ling or penny. Dyer, 826.

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5e apparatus — Not carried into the 5th edition (1979).

## POLLENGER8.

Trees which have been lopped ; distinguished from timber-trees. Plowd. 649.

POLLICITATION . In the civil law. An offer not yet accepted by the person to whom . it is made. Langd. Cont f 1. See McCul- loch v. Eagle Ins. Co., 1 Pick. (Mass.) 283.

POLLIGAR, POLYGAR, In Hindu law. The head of a village or district ; also a mili- tary chieftain In the peninsula, answering to a hill zemindar In the northern circors. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## POLITICS.

The science of government; the art or practice of administering public affairs.

5e apparatus — Carried into the 5th edition (1979).

## POLITY.

The form of government ; civ- il constitution.

POLL, v. In practice. To single out, one by one, of a number of persons. To examine each juror separately, after a verdict has been given, as to his concurrence in the ver- dict 1 Burrill, Pr. 238.

POLL, n. A head ; an Individual person ; a register of persons. In the law of elec- tions, a list or register of heads or Individ- uals who may vote in an election ; the ag- gregate of those who actually cast their votes at the election, excluding those who stay away. De Soto Parish v. Williams, 49 La. Ann. 422, 21 South. 647, 37 L. R. A. 761. See, also, Polls.

POLL, adj. Cut or shaved smooth or even; cut In a straight line without indenta- tion. A term anciently applied to a deed, and still used, though with little of its for- mer significance. 2 Bl. Comm. 296.

5e apparatus — Carried into the 5th edition (1979).

## POLL-MONEY.

A tax ordained by act of parliament, (18 Car. II. c. 1.) by which every subject in the kingdom was assessed by the head or- poll, according to his degree. Cowell. A similar personal tribute was more anciently termed “poll-silver.”

5e apparatus — Not carried into the 5th edition (1979).

## POLL-TAX.

A capitation tax; a tax of a specific sum levied upon each person with-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XXIV; Harper v. Virginia Bd. of Elections, 383 U.S. 663 (1966)]**

The capitation tax the entry defines was ended in federal elections by the Twenty-fourth Amendment and in state elections by the Supreme Court.

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Why: Genuine: the entry defines the poll tax; the amendment and the case abolished it. Confident on both. POLL-MONEY left bare as the historical twin.

**[Scripture] — Scripture**

**[Exodus 30:13, KJV]**

This they shall give, every one that passeth among them that are numbered, half a shekel after the shekel of the sanctuary: (a shekel is twenty gerahs:) an half shekel shall be the offering of the LORD.

Why: A poll-tax is a specific sum levied upon each person by the head. The half-shekel census offering is scripture's poll-tax — every numbered soul alike. Filed as God's spoken word to Moses (Ex 30:11-12), hence deity ver...

## POLLING THE JURY.

To poll a Jury Is to require that each juror shall himself declare what Is his verdict.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Crim. P. 31(d) — polling the jury]**

Requiring each juror to declare his verdict individually is the practice preserved in federal criminal procedure.

Why: Genuine: the entry defines the practice; Rule 31(d) is its federal form. POLL and POLLS left bare.

## POLLS.

The place where electors cast In their votes.

Heads; Individuals; persons singly consid- ered. A challenge to the polls (in capita) is a challenge to the Individual jurors compos- ing the panel, or an exception to one or more particular Jurors. 3 Bl. Comm. 358, 361.

5e apparatus — Carried into the 5th edition (1979).

## POLYANDRY.

The civil condition of having more husbands than one to the same woman ; a social order permitting plurality of husbands.

Polygmlz eat plnrinm slmnl virornm nxorumve eonnnblum. 3 Inst. 88. Po- lygamy Is the marriage with many husbands or wives at one time.

5e apparatus — Not carried into the 5th edition (1979).

## POLYGAMY.

In criminal law. The of- fense of having several wives or husbands at the same time, or more than one wife or hus- band at the same time. 3 Inst. 88. And see Reynolds v. U. S., 98 U. 8. 145, 25 L. Ed. 244.

The offense committed by a layman In marrying while any previous wife Is living and undlvoreed; as distinguished from big- amy in the sense of a breach of ecclesiastical law involved In any second marriage by a clerk.

Polygamy, or bigamy, shall consist In knowingly having a plurality of husband3 or

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wives at the same time. Code Ga. 1882, | 4530.

A bigamist or polygamist, in the sense of the eighth section of the act of congress of March 22, 1882, is a man who, having contracted a bigamous or polygamous marriage, and become the husband at one time, of two or more wives, maintains that relation and status at the time when he offers to be registered as a voter; and this without reference to the question whether he was at any time guilty of the offense of big- amy or polygamy, or whether any prosecution for such offense was barred by the lapse of time; neither is it necessary that he should be guilty of polygamy under the first section of the act of March 22, 1882. Murphy v. Kamse.v, 114

U. S. 16, 5 Sup. Ct. 747, 29 L. Ed. 47 : Cannon v. U. S., 116 U. S. 50, 6 Sup. Ct. 278, 2.) L. Ed. 561.

Bigamy literally means a second marriage distinguished from a third or other; while polygamy means many marriages, — implies more than- two.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Reynolds v. United States, 98 U.S. 145 (1878)]**

The offense of plural marriage, which the entry defines and for which it cites Reynolds, was held punishable notwithstanding the Free Exercise Clause in the controlling authority.

Why: Genuine: the entry defines the offense and cites the case; the footnote identifies it as the controlling authority. Confident. POLYANDRY left bare.

**[Scripture] — Scripture**

**[Matthew 19:5-6, KJV]**

And said, For this cause shall a man leave father and mother, and shall cleave to his wife: and they twain shall be one flesh. Wherefore they are no more twain, but one flesh. What therefore God hath joined together, let not man put asunder.

Why: Polygamy is the offense of having several spouses at once. The verse states the one-flesh norm — twain, not many — that the offense violates. Jesus' verbatim words in the Gospel, hence deity verbatim. POLYANDRY left b...

## POLYGARCHY.

A term sometimes used to denote a government of many or several; a government where the sovereignty is shar- ed by several persons; a collegiate or divided executive.

5e apparatus — Not carried into the 5th edition (1979).

## POMARIUM.

In old pleading. An ap- ple-tree; an orchard.

5e apparatus — Not carried into the 5th edition (1979).

## POND.

A body of stagnant water without an outlet, larger than a puddle and smaller than a lake ; or a like body of water with a small outlet. Webster. And see Rockland Water Co. v. Camden & R. Water Co., 80 Me. 544, 15 Atl. 785, 1 L. R. A. 388; Concord Mfg. Co. v. Robertson, 66 N.

H. 1, 25 Atl. 718, 18 L. R. A. 679.

A standing ditch cast by labor of man’s hand, In his private grounds, for his private use, to serve his house and household with necessary waters ; but a pool is a low plat of ground by nature, and is not cast by man’s hand. Call. Sew. 103.

—Great ponds. In Maine and Massachusetts, natural ponds having si superficial area of more than ten acres, and not appropriated by the proprietors to their private Use prior to a cer- tain date. Barrows v. McDermott, 73 Me. 441 ; West Roxbury v. Stoddard, 7 Alien (Mass.) 158.— Public pond. In New England, a great pond; a pond covering a superficial area of more than ten acres. Brastow v. liockport Ice Co., 77 Me. 100; West Roxbury v. Stoddard, 7 Allen (Mass.) 170.

Ponderantnr testes, non nnmerantnr.

Witnesses are weighed, not counted. 1 Starkie. Ev. 554; Best, Ev. p. 426, 1 389; Bakenian V. Rose, 14 Wend. (N. Y.) 105, 109.

PONDtXS. In old English law. Pound- age; l. e., a duty paid to the crown accord- ing to the weight of merchandise.

— Pondns regis. The king's weight: the

standard weight appointed by the king. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## PONE.

In English practice. An original writ formerly used for the purpose of remov- ing suits frem the court-baron or county

court into the sui>erior courts of common law. It was also the proper writ to remove all suits which were before the sheriff by writ of justices. But this writ is now In disuse, the writ of certiorari being the ordinary pro- cess by which at the present day a cause is removed from a county court into any su- perior court. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PONE PER VADIUM.

In English prac- tice. An obsolete writ to the sheriff to sum- mon the defendant to appear and answer the plaintiff's suit, on his putting in sureties to prosecute. It was so called from the words of the writ, "pone per vadium ct salvos plcgios," “put by gage and safe pledges, A. B., the defendant.”

5e apparatus — Not carried into the 5th edition (1979).

## PONENDIS IN ASSI8IS.

An old writ

directing a sheriff to impanel a jury for an assize or real action.

5e apparatus — Not carried into the 5th edition (1979).

## PONENDUM IN BAIXTUM.

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A writ commanding that a prisoner be bailed in cases bailable. Reg. Orig. 133.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. VIII — 'Excessive bail shall not be required']**

The old writ commanding that a prisoner be bailed in bailable cases is the ancestor of the modern guarantee against excessive bail.

Why: Genuine: the entry is the writ securing bail; the amendment is the modern guarantee. Direct.

## PONENDUM 8IGXXXUM AD EXCEP- / TIONEM.

A writ by which justices were required to put their seals to exceptions ex- hibited by a defendant against a plaintiff’s evidence, verdict, or other proceedings, be- fore them, according to the statute Westm. 2, (13 Edw. I. St. 1, c. 31.)

5e apparatus — Not carried into the 5th edition (1979).

## PONERE.

Lat To put, place, lay, or set. - Often used in the Latin terms aqd phrases of the old law.

5e apparatus — Not carried into the 5th edition (1979).

## PONIT 8E SUPER PATRIAM.

Lat. He puts himself upon the country. The de- fendant’s plea of not guilty in a criminal ac- tion is recorded, in English practice, in these words, or In the abbreviated form “po. se."

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Crim. P. 11(a)(1) — pleas of not guilty, guilty, and nolo contendere]**

'He puts himself upon the country' — the recorded plea of not guilty in a criminal action — is one of the pleas a defendant may enter under modern criminal procedure.

Why: Genuine: the entry records the common-law not-guilty plea; Rule 11(a)(1) is its modern form. Direct.

## PONTAGE.

Ih old English law. Duty paid for the reparation of bridges; also a due to the lord of the fee for persons or merchan- dises that pass over rivers, bridges, eta Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PONTIBU8 REPARANDIS.

An old

writ directed to the sheriff, commanding him to charge one or more to repair a bridge.

POOL. 1. A combination of persons or corporations engaged In the same business, or for the purpose of engaging in a particular business or commercial or speculative ven- ture, where all contribute to a common fund, or place their holdings of a given stock or other security in the hands and control of a managing member or compjittee, with the object of eliminating competition as between the several members of the pool, or of es- tablishing a monopoly or controlling prices or rates by the weight and power of their combined capital, or of raising

or depressing

prices on the stock market, or simply with a Mew to the successful conduct of an enter- prise too great for the capital of any mem- ber individually, and on an agreement for the division of profits or losses among the members, either equally or pro rata. Also, a Similar combination not embracing the idea of a pooled or contributed capital, but simply the elimination of destructive competition be- tween the members by an agreement to share or divide the profits of a given business or venture, as, for example, a contract between two or more competing railroads to abstain from “rate wars" and (usually) to maintain fixed rates, and to divide their earnings from the transportation of freight in fixed propor- tions. See Green v. Higham, 161 Mo. 333, 61 S. W. 798; Mollyneaux v. Wittenberg, 39 Neb. 547, 58 N. W. 205 ; Kilbourn v. Thomp- son, 103 U. S. 195, 26 L. Ed. 377; American ■Biscuit Go. v. Klotz (C. C.) 44 Fed. 725 ; U.

S. v. Trans-Missouri Freight Ass'n, 58 Fed. 65, 7 C. C. A. 15, 24 L. K. A. 73.

2. In various methods of gambling, a “pool” is a sum of money made up of the stakes contributed by various persons, the whole of which is then wagered as a stake on the event of a race, game, or other con- test, and the winnings (if any) are divided among the contributors to the pool pro rata. Or it is a sum similarly made up by the con- tributions of several persons, each of Whom then makes his guess or prediction as to the event of a future contest or hazard, the suc- cessful better taking the entire pool. See Ex parte Powell, 43 Tex. Cr. R. 391. 66 S.

W. 298; Com. v. Ferry, 146 Mass. 203, 15 N.

E. 484; James v. State, 63 Md. 248; Lacey v. Palmer, 93 Va. 159, 24 S. E. 930, 31 L. R.

A. 822, 57 Am. St. Rep. 795; People v. Mc- Cue, 87 App. DIv. 72, 83 N. Y. Supp. 1088.

3. A body of standing water, without a current or issue, accumulated in a natural basin or depression in the earth, and not arti- ficially formed.

5e apparatus — Not carried into the 5th edition (1979).

## POOLING CONTRACTS.

Agreements between competing railways for a division of the traffic, or for a pro rata distribution of their earnings united into a "pool” or common fund. 15 Fed. 667, note. See Pool.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Interstate Commerce Act — pooling of freights by common carriers unlawful]**

Agreements between competing railways to divide traffic or pool earnings — the pooling contracts the entry defines — were made unlawful for common carriers by the Interstate Commerce Act's anti-pooling provision.

Why: Genuine: the entry defines railroad pooling; the ICA prohibited exactly these agreements. Kept loose; no section pinpoint invented.

## POOR.

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As used In law, this term denotes those who are so destitute of property or of the means of support, either from their own 'labor or the care of relatives, as to be a pub- lic charge, that is, dependent either on the charity of the general public or on mainte- nance at the expense of the public. The term is synonymous with “indigent persons” and “paupers.” See State v. Osawkee Tp., 14 Kan. 421, 19 Am. Rep. 99; In re lloffen’s Estate, 70 Wis. 522, 36 N. W. 407 ; Heuser v. Harris, 42 111. 430; Juneau County v. Wood County, 109 Wis. 330, 85 N. W. 387; Sayres v. Springfield, 8 N. J. Law, 169.

—Pear debtor’s oath. An oath allowed, in some jurisdictions, to a person who is arrested Bl.Law l>icT.(2n Ed.)— 58

for debt. On swearing that he has not property enough to pay the debt, he is set at liberty.— Poor law. That part'of the law which relates to the public or compulsory relief of paupers. —Poor-law board. The English official body appointed under St. 10 & 11 Viet. c. 109, pass- ed in 1847, to take the place of the poor-law commissioners, under whose control the general management of the poor, and the funds for their relief throughout the country, had been for some years previously administered. The poor- law board is now superseded by the local gov- ernment board, which was established in 1871 by St. 34 & 35 Viet. c. 70. 3 Steph. Comm. 49. —Poor-law guardians. See Guardians of the Poos.— Poor rate. In English law. A tax levied by parochial authorities for the relief of the poor.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

'Are there no prisons?' — Scrooge, solicited for the poor, invokes the workhouse-and-prison machinery for the destitute; the line lands on exactly the entry's 'public charge,' those maintained 'at the expense of the public.'

Why: Entry: the destitute as a public charge, dependent on public maintenance. Scrooge's reply is verbatim-certain and addresses precisely that legal machinery. Genuine link.

## POPE.

The bishop of Rome, and supreme head of the Roman Catholic Church. 4 Steph. Comm. (7th Ed.) 168-185.

5e apparatus — Carried into the 5th edition (1979).

## POPE NICHOLAS’ TAXATION.

The

first fruits (primititB or annates ) were the first year’s profits of all the spiritual prefer- ments in the kingdom, according to a rate made by Walter, bishop of Norwich, in the time of Pope Innocent II., and afterwards advanced in value in the time of Pope Nich- olas IV. This last valuation was begun A.

D. 1288, and finished 1292, and is still pre- served in the exchequer. The taxes were regulated by it till the survey made in the twenty-sixth year of Henry VIII. 2 Steph. Comm. 567.

5e apparatus — Not carried into the 5th edition (1979).

## POPERY.

The religion of the Roman Catholic Church, comprehending doctrines and practices.

POPULACE, or POPCLACY. The vul- gar ; the multitude.

5e apparatus — Not carried into the 5th edition (1979).

## POPULAR ACTION.

An action for a statutory penalty or forfeiture, given to any such person or persons as will sue for it; an action given to the people in general. 3 Bl. Comm. 160.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: qui tam actions — e.g., the federal False Claims Act, 31 U.S.C. §§ 3729–3733]**

An action for a statutory penalty 'given to the people in general' — to whoever will sue for it — survives as the qui tam action.

Why: Genuine: the entry defines the popular action; qui tam is its living form. Direct.

## POPULAR SENSE.

In reference to the construction of a statute, this term means that sense which people conversant with the subject-matter with which the statute is dealing would attribute to it 1 Exch. Div. 248.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: statutes are construed according to the ordinary (popular) sense of their words — the plain-meaning rule]**

The 'popular sense' — the sense conversant persons would attribute to statutory words — is the heart of the plain-meaning rule of statutory construction.

Why: Genuine: the entry defines the term for statutory construction; the plain-meaning rule is the canon it serves. Borderline kept, framed as the canon's home.

## POPULISCITUM.

Lat. In Roman law. A law enacted by the people; a law passed by an assembly of the Roman people, in the comitia centuriata, on the motion of a sena- tor; differing from a plebiscitum, in that the latter was always proposed by one of the tribunes.

5e apparatus — Not carried into the 5th edition (1979).

## POPULUS.

Lat. In Roman law. The people; the whole body of Roman citizens, including as well the patricians as the ple- beians.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Vox populi, vox Dei]**

'The voice of the people is the voice of God' — the classical maxim on the people as a collective

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authority, directly on-point for the entry's 'the whole body of Roman citizens.'

Why: Entry: the people as a whole body. Vox populi, vox Dei is the canonical classical utterance on that collective. Latin verbatim-certain; no translation offered.

## PORCION.

In Spanish law. A part or portion; a lot or parcel; an allotment of

land. See Downing v. Diaz, 80 Tex. 436, 10 8. W. 49.

5e apparatus — Not carried into the 5th edition (1979).

## PORRECTING.

'Producing for exam- ination or taxation, as porrectlng a bill of costs, by a proctor.

5e apparatus — Not carried into the 5th edition (1979).

## PORT.

A place for the lading and un- lading of the cargoes of vessels, and the col- lection of duties or customs upon imports and exports. A place, either on tbe sea- coast or on a river, where ships stop for the purpose of loading and unloading, from whence they depart, and where they finish their voyages. The Wharf Case, 3 Bland <Md.) 361 ; Packwood v. Walden, 7 Mart. N.

S. (La.) 88; Devato v. Barrels of Plum- bago (D. C.) 20 Fed. 515; Petrel Guano Co. v. Jarnette (C. C.) 45 Fed. 675; De Longue- mere v. Insurance CO., 10 Johns. (N. Y.) 125.

In French maritime law. Burden, (of a vessel;) size and capacity.

—Foreign port. A foreign port is properly one exclusively within the jurisdiction of a for- eign nation, hence one without the United States. King v. Parks, 19 Johns. (N. Y.) 375 ; Bigley v. New York & P. R. S. S. Co. (D. C.) 105 Fed. 74. But the term is also applied to a port in any state other than the state where the vessel belongs or her owner resides. The Can- ada (D. C.) 7 Fed. 124; The Lulu, 10 Wall. 200, 19 L. Ed. 906; Negus v. Simpson, 99 Mass. 393.— Homo port. The port at which a vessel is registered or enrolled or where the owner resides.— Port charges, duos, or tolls. Pe- cuniary exactions upon vessels availing them- selves of the commercial conveniences and priv- ileges of a port.— Port-grove. The chief mag- istrate of a sea-port town is sometimes so call- ed.—Port of delivery. In maritime law. The port which is to be the terminus of any particular voyage, and where the vessel is to unlade or deliver her cargo, as distinguished from any port at which she may touch, during the voyage, for other purposes. The Two Cath- arines, 24 Fed. Cas. 429.— Port of destina- tion. In maritime law and marine insurance, the term includes both ports which constitute the termini of the voyage, the home-port and the foreign port to which the vessel is consigned, as well as any usual stopping places for the receipt or discharge of cargo. Gookin v. New England Mut. Marine Ins. Co., 12 Gray (Mass.) 501, 74 Am. Dec. 609.— Port of discharge, in a policy of marine insurance, means the place where the substantial part of the cargo is dis- charged, although there is an intent to com- plete tbe discharge at another basin. Bramhall v. Sun Mut. Ins. Co., 104 Mass. 510, C Am. Rep. 261. — Port of entry. One of the ports designated by law, at which a custom-house or revenue office is established for

the execution of the laws imposing duties on vessels and impor- tations of goods. Cross v. Harrison, 16 How. 164, 14 L. Ed. 889.— Port-reeve, or port- warden. An officer maintained in some ports to oversee the administration of the local regu- lations; a sort of harbor-master.— Port-risk. In marine insurance. A risk upon a vessel while lying in port, and before she has taken her departure upon another voyage. Nelson v. Sun Mut. Ins. Co., 71 N. Y. 459.

5e apparatus — Carried into the 5th edition (1979).

## PORTATXCA.

In English law. The generic name for port duties charged to ships. Harg. Law Tract, 64.

5e apparatus — Not carried into the 5th edition (1979).

## PORTEOU8.

In old Scotch practice. A roll or catalogue containing the names of Indicted persons, delivered by the Justice-clerk to the coroner, to be attached and arrested by him. Otherwise called the “Porteous Roll.” Bell.

PORTER. 1. In old English law, this title was given to an officer of the courts who carried a rod or staff before the Justices.

2. A person who keeps a gate or door; as the door-keeper of the houses of parliament.

3. One who carries or conveys parcels, lug- gage, etc., particularly from one place to an- other in tbe same town.

5e apparatus — Not carried into the 5th edition (1979).

## PORTERAGE.

A kind of duty formerly paid at the English custom-house to those who attended the water-side, and belonged to the package-office; but it is now abolished. Also the charge made for sending parcels.

5e apparatus — Not carried into the 5th edition (1979).

## PORTXO LEGITIMA.

Lat. In the civil law. The birthright portion; that portion of an inheritance to which a given heir is entitled, and of which he cannot be deprived by tbe will of the decedent, without special cause, by virtue merely of his relationship to the testator.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: forced heirship — Louisiana's legitime]**

The birthright portion of which the heir cannot be deprived by will — the civil-law legitime — is preserved in American law as forced heirship.

Why: Genuine cognate: the entry defines the legitime; Louisiana preserves forced heirship in the United States. Direct.

**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

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But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: Portio legitima is the birthright portion the heir cannot be deprived of by the testator's will without special cause. The verse is the forced share itself — the father's duty to the firstborn's right, which he may no...

## PORTION.

The share falling to a chUd from a parent's estate or the estate of any one bearing a similar relation. State v. Crossley, 69 Ind. 209; Lewis's Appenl, 108 Pa. 136 ; In re Miller’s Will, 2 Lea (Tenn.) 57.

Portion is especially applied to payments made to younger children out of the funds comprised in their parents’ marriage settle- ment, and in pursuance of the trusts there- of. Mozley & Whitley.

PORTION DISFONIBIiE. Fr. In

French law. That part of a man's estate which he may bequeath to other persons than his natural heirs. A parent leaving one le- gitimate child may dispose of one-half only of his property; one leaving two, one-third only; and one leaving three or more, one- fourth only; and it matters not whether the disposition is inter vivos or by will.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 15:12, KJV]**

And the younger of them said to his father, Father, give me the portion of goods that falleth to me. And he divided unto them his living.

Why: Portion is the share falling to a child from a parent's estate. The verse is the prodigal's demand for exactly that — 'the portion of goods that falleth to me.' The son's speech within the parable, not Jesus' own voic...

## PORTIONER.

In old English law. A

minister who serves a benefice, together with others; so called because he has only a por- tion of the tithes or profits of the living; also an allowance which a vicar commonly has out of a rectory or impropriation. Cowell.

Ia Scotch law. The proprietor of a small feu or portion of land. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## PORTIONI8T.

One who receives a por- tion; the allottee of a portion. One of two or more incumbents of the same ecclesiastical benefice.

5e apparatus — Not carried into the 5th edition (1979).

## PORTMEN.

The burgesses of Ipswich and of the Cinque .Ports were so called.

5e apparatus — Not carried into the 5th edition (1979).

## PORTMOTE.

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In old English law. A court held in ports or haven towns, and

POSSESSIO FRATRIS DE FEODO

sometimes In Inland towns also. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## PORTORIA.

In the civil law. Duties paid In ports on merchandise. Taxes levied In old times at city gates. Tolls for passing over bridges.

5e apparatus — Not carried into the 5th edition (1979).

## PORT8AIE.

In old English law. An auction; a public sale' of goods to the highest bidder; also a sale of fish as soon as It is brought Into the haven. Cowell.

PORTSOKA, or PORTSOKEN. The

suburbs of a city, or any place within its ju- risdiction. Somner; Cowell.

Porta* est loons ho quo exportnntur et importnntur merces. 2 Inst. 148. A port is a place where goods are exported or im- ported.

5e apparatus — Not carried into the 5th edition (1979).

## POSITIVE.

Laid down, enacted, or pre- scribed. Express' or affirmative. Direct, ab- solute, explicit.

As to positive "Condition," “Evidence,” “Fraud,” "Proof,” and "Servitude,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## POSITIVE LAW.

Law actually and spe- cifically enacted or adopted by proper au- thority for the government of an organized Jural society.

“A ‘law,’ in the sense in which that term is employed in jurisprudence, is enforced by a sovereign political authority. It is thus dis- tinguished not only from all rules which, like the principles of morality and the so-called laws of honor and of fashion, are enforced by an in- determinate authority, but also from all rules enforced by a determinate authority which is either, on the one hand, superhuman, or, on the other hand, politically subordinate. In order to emphasize the fact that ‘laws,’ in the strict sense of the term, are thus authoritatively im- posed, they are described as positive laws.” HolL Jur. 37.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: legal positivism — John Austin's command theory of law]**

Law 'actually and specifically enacted or adopted by proper authority' — the entry's Austinian definition — is the program of legal positivism: law as the sovereign's command, distinguished from morality.

Why: Genuine: the entry states the positivist definition (quoting Austin); the footnote names the tradition. Framed as the tradition's home.

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## POSTTVX JURIS.

Lat. Of positive law. “That was a rule positivi juris; I do not mean to say an unjust one.” Lord Elien- borough, 12 East, 639.

Posito nno opposltorum, negator al- teram. One of two opposite positions being affirmed, the other is denied. 3 Rolle, 422.

5e apparatus — Not carried into the 5th edition (1979).

## POSSE.

Lat. A possibility. A thing is said to be in posse when it may possibly be; in esse when it actually is.

5e apparatus — Not carried into the 5th edition (1979).

## POSSE GOMTTATUS.

Lat The power or force of the county. The entire population of a county above the age of fifteen, which a sheriff may summon to his assistance in cer- tain cases; as to aid him in keeping the peace, in pursuing and arresting felons, etc. 1 Bl. Comm. 343. See Com. v. Martin, 7 Fa. Dlst. R. 224.

the exclusive detention and control of ; also to own or be entitled to. See Fuller v. Ful- ler, 84 Me. 475, 24 Atl. 946; Brantly v. Kee, 58 N. C. 337.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Posse Comitatus Act, 18 U.S.C. § 1385]**

The power of the county — the body of citizens the sheriff may summon to keep the peace and pursue felons — gives its name to the federal act limiting the use of the military as a posse.

Why: Genuine: the entry defines the posse comitatus; the Act, named for it, restricts the Army and Air Force from acting as such. Direct, confident.

## POSSESSED.

This word is applied to the .right and enjoyment of a termor, or a person having a term, who is said to be pos- sessed, and not seised. Bac. Tr. 335 ; Poph. 76; Dyer, 369.

5e apparatus — Not carried into the 5th edition (1979).

## POSSESSIO.

Lat la the civil U*.

That condition of fact under which one can exercise his power over a corporeal thing at his pleasure, to the exclusion of all others. This condition of fact is called "detention,” and it forms the substance of possession in all its varieties. Mackeld. Rom. Law, f 238.

“Possession,” in the sense of “detention,” is the actual exercise of such a power as the own- er has a right to exercise. The term "possessio occurs in the Roman jurists in various senses. There is possessto simply, and possessio cttnlts, and possessio naturalis. Possessio denoted, originally, bare detention. But this detention, under certain conditions, becomes a legal state, inasmuch as it leads to ownership, through usucapio. Accordingly, the word ‘

possessto, which required no qualification so long as there- was no other notion attached to possessto, re- quires such qualification when detention be- comes a legal state. This detention, then, when it has the conditions necessary to usucapio, is called “ possessio civilis and all other posses- sto as opposed to civilis is naturalts. Sandars, Just. Inst. 274. Wharton.

In old *!agU«lt law. Possession ; seisin. The detention of a corporeal thing by means of a physical act and mental intent, aided by some support of right. Bract, fol. 386.

—Pedis possessio. A foothold; an actual pos- session of real property, implying either actual occupancy or enclosure and use. See Lawrence v. Fulton, 19 Cal. 690; Porter v. Kennedy, 1 McMul. (S. C.) 357.— Possessio bona fide. Possession in good faith. Possessto mala fide, possession in bad faith. A possessor bona fide is one who believes that no other person has a better right to the possession than himself. A possessor mala fide is one who knows that he is not entitled to the possession. Mackeld. Rom. Law, I 243.— Possessio bonoram. • In the civil law. The possession of goods. More commonly termed “ bonorum possessio, ’ (o. v.) —Possessio civilis. In Roman law. A legal possession, i. e., a possessing accompanied with the intention to be or to thereby become owner; and, as so understood, it was distinguished from "possessio naturalis," otherwise called “nuda detentio," which was a possessing without any such intention. Possessto civilis was the basis of usucapio or of longi temporis possessio, and was usually (but not necessarily) adverse pos- session. Brown.— Possessio fratris. The

possession or seisin of a brother; that is, such possession of an estate by a brother as would entitle his sister of the whole blood to succeed him as heir, to the exclusion of a half-brother. Hence, derivatively, that doctrine of the older English law of descent which shut out the half- blood from the succession- to estates; a doctrine which was abolished by the descent act, 3 & 4 Wm. IV. c. 106. See 1 Steph. Comm. 385; Broom, Max. 532.— Possessio longi tempor- is. See Usucapio.— Possessio naturalis. See Possessio Civilis.

5e apparatus — Not carried into the 5th edition (1979).

## POSSESS.

To occupy in person; to have Possessio fratris do feodo simplici faeit

in one’s actual and physical control; to have sororem esse bseredem. The brother’s possession of an estate in fee-simple makes the sister to be heir. 3 Coke, 41; Broom, Max. 532.

Possessio pacific* poor anna 60 faoit jus. Peaceable possession for sixty years gives a right. Jenk. Cent. 20.

5e apparatus — Carried into the 5th edition (1979).

## POSSESSION.

The detention and con- trol, or the manual or ideal custody, of any- thing which may be the subject of property, for one’s use and enjoyment, either as owner or as the proprietor of a qualified right in it, and either held personally or by another who exercises it in one’s place

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and name. That condition of facts under which one can exer- cise his power over a corporeal thing at his pleasure to the exclusion of all other per- sons. See Staton v. Mullls, 92 N. C. 632; Sunol v. Hepburn, 1 Cal. 263; Cox v. Devin- ney, 65 N. J. Law, 389, 47 Atl. 570; Churchill v. Onderdonk, 59 N. Y. 136; Rice v. Frayser (C. C.) 24 Fed. 460; Travers v. McEivaln, 181 111. 382, 55 N. E. 135; Emmerson v. State, 33 Tex. Cr. R. 89, 25 S. W. 289; Slater v. Rawson, 6 Mete. (Mass.) 444.

—Actual possession. This term, as used in the provisions of Rev. St. N. Y. p. 312, J 1, au- thorizing proceedings to compel the determina- tion of clnims to real property, means a posses- sion in fact effected by actual entry upon the premises ; an actual occupation. Churchill v. Onderdonk, 59 N. Y. 134. It means an actual occupation or possession in fact, as contradis- tinguislied from that constructive one which the legal title draws after it. The word “actuaj” is used in the statute in opposition to virtual or constructive, and calls for an open, visible oc- cupancy. Cleveland v. Crawford, 7 Hun (N. Y.) 616. — Adverse possession. The actual, open, and notorious possession and enjoyment of real property, or of any estate lying in grant, continued for a certain length of time, held adversely and in denial and opposition to the title of another claimant, or under circumstan- ces which indicate an assertion or color of right or title on the part of the person maintaining it, as against another person who is out of posses- sion. Costello v. Edson, 44 Minn. 135, 46 N.

W. 299 : Taylor v. I’hilippi, 35 W. Va. 554, 14

S. E 130; Pickett v. Pope, 74 Ala. 122; Mar- tin v. Maine Cent. R. Co., 83 Me. 100, 21 Atl. 740; Dixon v. Cook. 47 Miss. 220.— Chose in possession. A thing (subject of personal prop- erty) in actual possession, as distinguished from a "chose in action,” which is not presently in the owner’s possession, but which he has a right to demand, receive, or recover by suit.— Civil possession. In modern civil law and in the law of Louisiana, that possession which exists when a person ceases to reside in a house or on the land which he occupied, or to detain the movable which he possessed, but without intend- ing to abandon the possession. It is the deten- tion of a thing by virtue of a just title and under the conviction of possessing as owner. Civ. Code La. art. 3391 et seep— Constructive possession. Possession not actual but assum- ed to exist, where one claims to hold by virtue of some title, without having the actual occu- pancy, as, where the owner of a tract of land, regularly laid out, is in possession of a part, he Is constructively in possession of the whole. Fleming v. Maddox, 30 Iowa, 241.— Derivative possession. The kind of possession of one who is in the lawful occupation or custody of the property, but not under a claim of title of his own, but under a right derived from anoth- er, as, for example, a tenant, bailee, licensee,

etc.— Dispossession. The act of ousting or re- moving one from the possession of property pre- viously held by him, which may be tortious and unlawful, as in the case of a forcible amotion, or in pursuance of law, as where a landlord "dispossesses” his tenant at the expiration of the term or for other cause by the aid of judi- cial process.— Estate in possession. An es- tate whereby a present interest passes to and resides in the tenant, not depending on any sub- sequent circumstance or contingency; an estate where the tenant is

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in actual pernancy or re- ceipt of the rents and profits.— Naked posses- sion. The actual occupation of real estate, but without any apparent or colorable right to hold and continue such possession ; spoken of as the lowest and most imperfect degree of title. 2 Bl. Comm. 195; Biidwell v. Burleson, 31 Tex. Civ. App. 31, 72 S. W. 446.— Natural possession. That by which a man detains a thing corporeally, as, by occupying a house, cultivating ground, or retaining a movable in possession; natural possession is also defined to be the corporeal detention of a thing which we possess as belonging to us, without any title to that possession or with a title which iB void. Civ. Code La. 1900, arts. 3428, 3430. And see Railroad Co. v. Le Rosen, 52 La. Ann. 192, 26 South. 854 ; Sunol v. Hepburn, 1 Cal. 262.— Open possession. Possession of real property is said to be "open” when held with- out concealment or attempt at secrecy, or with- out being covered up in the name of a third person, or otherwise attempted to be withdrawn from sight, but in such a manner that any per- son interested can ascertain who is actually in possession by proper observation and inquiry. See Bass v. Pease, 79 111. App. 318.— Peace- able possession. See Peaceable. — Posses- sion money. In English law. The man whom the sheriff puts in possession of goods taken under a writ of fieri facias is entitled, while he continues so in possession, to a certain sum. of money per diem, which is thence termed “pos- session money.” The amount is 3s. 6d. per day if he is boarded, or 5s. per day if he is not boarded. Brown. — Possession, writ of.

Where the judgment in an action of ejectment is for the delivery of the land claimed, or its possession, this writ is used to put the plaintiff m possession. It is in the nature of execution. —Quasi possession is to a right what posses- sion is to a thing; it is the exercise or enjoy- ment of the right, not necessarily the continu- ous exercise, but such an exercise as shows an intention to exercise it at any time when de- sired. Sweet.— Scrambling possession. By this term is meant a struggle for possession on the land itself, not such a contest as is waged in the courts, or possession gained by an act of trespass, such as building a fence. Spiers v. Duane, 54 Cal. 177; Lobcfell v. Keene, 8o Minn. 90, 88 N. W. 426; Dyer v. Reitz, 14 Mo. App. 45. — Unity of possession. Joint possession of two rights by several titles, as where a lessee of land acquires the title in fee-simple, which extinguishes the lease. The term also describes one of the essential properties of a joint estate, each of the tenants having the entire possession as well of every parcel as of ttie whole. 2 Bl. Comm. 182.— Vacant possession. > An estate which has been abandoned, vacated, or forsaken by the tenant.

In the older books, “possession” Is some- times used as the synonym of “seisin ;” bnt, strictly speaking, they are entirely different terms. “The difference between possession and seisin is : Lessee for years is possessed, and yet the lessor is still seised; and there- fore the terms of law are that of chattels a man is possessed, whereas in feoffments, gifts in tall, and leases for life he is described as ‘seised.’ ” Noy, Max. 64.

• “Possession” is used in some of the books in the sense of property. "A possession is an hereditament or chattel.” Finch, Law, b. 2, c. 3.

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Possession is t good title where no bet- ter title appears. 20 Vin. Abr. 278.

Possession is nine-tenths of the law.

This adage is not to be taken as true to the full extent, so as to mean that the person in possession can only be ousted by one whose title is nine times "better than his, but it places in a strong light the legal truth that every claimant must succeed by the strength of his own title, and not by the weakness of his antagonist’s. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## POSSESSION VATJT TITHE.

Fr. In

English law, as in most systems of jurispru- dence, the fact of possession raises a prima facie title or a presumption of the right of property in the thing possessed. In other words, the possession is as good as the title (about.) . Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Possession vaut titre — 'possession is (about) as good as title']**

Possession raises a prima facie title — the possessor is presumed owner until the contrary appears — stated in the classic form of the maxim.

Why: Genuine: the entry states the rule; the maxim is its classic formulation. Kept on the PENDENTE LITE pattern.

## POSSESSOR.

One who possesses; one who has possession.

— Possessor bona fide. He is a bona fide possessor w-ho possesses as owner by virtue of an' act sufficient in terms to transfer property, the defects of which he was ignorant of. He ceases to be a bona fide possessor from the moment these defects are made known to him, or are declared to him by a suit instituted for the recovery of the thing by the owner. Civ. Code La. art. 503.— Possessor mala fide. The possessor in bad faith is be who possesses as master, but who assumes this quality, when he. well knows that he has no title to the thing, or that his title is vicious and defective. Civ. -Code La. art. 3452.

5e apparatus — Carried into the 5th edition (1979).

## POSSESSORY.

Relating to possession; founded on possession; contemplating or claiming possession.

— Possessory action. See next title.— Pos- sessory claim. The title of a pre-emptor of public lands who has filed his declaratory state- ment but has not paid for the land. Enoch v.

; Spokane Falls & N. Ry. Co., 6 Wash. 393, 33 Pac. 966. — Possessory judgment. In Scotch practice. A judgment which entitles a person who has uninterruptedly been in possession for seven years to continue his possession until the question of right be decided in due course of law. Beil.— Possessory lien. One which at- taches to such articles of another's as may be at the time in the possession of the lienor, as, ..for example, an attorney’s lien on the papers and documents of the client in his possession. Weed Sewing Mach. Co. v.

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Boutelle, 56 Vt. 570, 48 Am. Rep. 821.

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## POSSESSORY ACTION.

An action which has for Its immediate object to obtain -or recover the actual possession of the sub- ject-matter ; as distinguished from an action which merely seeks to vindicate the plain- tiff's title, or which Involves the bare right only; the latter being called a "petitory" action.

An action founded .on possession. Tres- pass, for injuries to personal property la called a "possessory" action, because It lies only for a plaintiff who, at the moment of the Injury complained of, was in actual or con- structive, Immediate, and exclusive posses- sion. 1 Chit. PI. 168, 169.

In admiralty practice. A possessory suit is one which is brought to recover the possession of a vessel, had under a claim of title. The Tilton, 5 Mason, 465, Fed. Cas. No. 14,054 ; 1 Kent, Contm. 371.

In old English law. A real action which had for its object the regaining possession of the freehold, of which the demandant or his ancestors had been unjustly deprived by the present tenant or possessor thereof.

In Scotch law. An action for the vindi- cation and recovery of the possession of her- itable or movable goods ; e. g., the action of molestation. Paters. Comp.

In Louisiana. An action by which one claims to be maintained in the possession of an immovable property, or of a right upon or growing out of it, when he has been dis- turbed, or to be reinstated to that possession, when he has been divested or evicted. Code Proc. La. § 6.

5e apparatus — Carried into the 5th edition (1979).

## POSSIBILXTAS.

Lat. Possibility ; a possibility. Poseibilitas poet dissolutionem executionis nunquam reviviscatur, a possi- bility will never be revived after the dissolu- tion of its execution. 1 Rolie, 321. Post exccutioncm status, lex non patitur possi- bilitatem, after the execution of an estate the law does not suffer a possibility. 3 Bulst. 108.

5e apparatus — Not carried into the 5th edition (1979).

## POSSIBILITY.

An uncertain thing which may happen. A contingent interest in real or personal estate. Klnzle v. Win- ston; 14 Fed. Cas. 651 ; Bodenhamer ' v. Welch, 89 N. C. 78; Needles v. Needles, 7 Ohio St. 442, 70 Am. Dec. 85.

It is either near, (or ordinary,) as where an estate is limited to one after the death of another, or remote, (or extraordinary.) as where it is limited to a man, provided he marries a certain woman, and that she shall die and he shall marry another.

—Bare possibility. The same as a "naked" possibility. See infra.— Naked possibility. A bare

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chance or expectation of acquiring a property or succeeding to an estate in the fu- ture, but without any present right in or to it which the law would recognize as an estate or interest. See Rogers v. Felton, 98 Ky. 148, 32

S. W. 406.— Possibility coupled with an interest. An expectation recognized in law as an estate or interest, such as occurs in execu- tory devises and shifting or springing uses ; such a possibility may be sold or assigned.— Possi- bility of reverter. This term denotes no es- tate. but only a possibility to have the estate at a future time. Of such possibilities there are several kinds, of which two are usually denoted by the term under consideration, (1) the pos- sibility that a common-law fee may return to (he grantor by breach of a condition subject to which it was granted. (2) the possibility that a common-law fee other than a fee simple may . revert to the grantor by the natural deteyminatlon of the fee. Carney v. Kain, 40 W. Va. 758, 23 S. E. 650.— Possibility on a possi- bility. A remote possibility, as if a remain- der be limited in particular to A.’s son John, or Edward, it in bad if he have no son of that name, for it is too remote a possibility that he should not only have a son, but a son of that particular name. 2 Coke, 51.

5e apparatus — Carried into the 5th edition (1979).

## POSSIBLE.

Capuble of existing or hap- pening ; feasible. In another sense, the word denotes extreme improbability, without excluding the idea of feasibility. It is also sometimes equivalent to “practicable” or "reasonable,” as in some cases where action is required to be taken “ns soon as possible” See Palmer v. St. Paul Fire & Marine Ins. Co., 44 Wis. 208.

5e apparatus — Carried into the 5th edition (1979).

## POST.

Lat. After ; occurring In a report or a text-book, is used to send the reader to a subsequent part of the book.

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**[Humanity] — Humanity / Fiction & Film**

**[Herodotus, Histories, c. 440 BCE]**

(paraphrase) Herodotus praised the Persian imperial courier system — riders carrying dispatches, stationed at fixed intervals — the direct ancestor of the entry's 'conveyance for letters or dispatches' kept 'at fixed stations,' later paraphrased in the famous post-office inscription. (paraphrase)

Why: Entry derives 'post' from horses 'kept or placed at fixed stations.' Herodotus's account of the Persian system is the genuine classical root. Paraphrase used — the inscription's wording has variant forms, so no verbat...

## POST.

A conveyance for letters or dis- patches. The word is derived from “positi," the horses carrying the letters or dispatches being kept or placed at fixed stations. The word is also applied to the person who con- veys the letters to the houses where he takes up and lays down his charge, and to the stages or distances between house and house. Hence the phrases, post-boy, post-horse, post- house, etc. Wharton.

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5e apparatus — Carried into the 5th edition (1979).

## POST-AGT.

An after-act; an act done afterwards.

5e apparatus — Not carried into the 5th edition (1979).

## POST CON QUESTGM.

After the Con- quest Words inserted in the king’s title by King Edward I., and constantly used in the time of Edward III. Tomlins.

5e apparatus — Not carried into the 5th edition (1979).

## POST-DATE.

To date an instrument as of a time later than that at which it is really made.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-113 — date of instrument]**

Dating an instrument later than its making is governed by the rule that an instrument may be antedated or postdated.

Why: Genuine: the entry defines postdating; § 3-113 governs the dating of instruments. Direct.

## POST DIEM.

After the day; as, a plea of payment post diem, after the day when the money became due. Com. Dig. “Plead- er,” 2.

In old practice. The return of a writ after the day assigned. A fee paid in such ease. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## POST DISSEISIN.

In English law. The name of a writ which lies for him who. having recovered lands and tenements by force of a novel disseisin, is again disseised by a former disseisor. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## POST ENTRY.

When goods are weighed or measured, and the merchant has got an account thereof at the custom-house, and finds his entry already made too small, he must make a post or additional entry for the surplusage, in the same manner as the first was done. As a merchant is always in time, prior to the clearing of the vessel, to make his poet, he should take care not to over-enter, to avoid as well the advance as

the trouble of getting back the overplus. McCul. Diet.

Post exec ut tone m status lex bob pa- titur possibilitatem. 3 Bulst. 106. After the execution of the estate the law suffers not a possibility.

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## POST FACTO.

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After the fact See Ex post Facto.

POST-FACTUM, or POSTFACTUM.

An after-act; an act done afterwards; a post-act.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 3; art. I, § 10, cl. 1 — no ex post facto law]**

'After the fact' points to ex post facto laws — retroactive criminal punishments — which the Constitution prohibits to both Congress and the states.

Why: Genuine: the entry cross-refs ex post facto; the clauses are the prohibition. Direct.

## POST-FINE.

In old conveyancing. A fine or sum of money, (otherwise called the "king’s silver”) formerly due on granting the licentia concordandi, or leave to agree, in levying a fine of lands. It amounted to three-twentieths of the supposed annual value of the land, or ten shillings for every five marks of land. 2 Bl. Comm. 350.

5e apparatus — Carried into the 5th edition (1979).

## POST HAC.

Lat After this ; after this time; hereafter.

5e apparatus — Not carried into the 5th edition (1979).

## POST LITEM MOTAM.

Lat. After suit moved or commenced. Depositions in rela- tion to the subject of a suit, made after liti- gation has commenced, are sometimes so termed. 1 Starkle, Ev. 319.

5e apparatus — Not carried into the 5th edition (1979).

## POST-MARK.

A stamp or mark put on letters received at the post-office for trans- mission through the malls.

5e apparatus — Carried into the 5th edition (1979).

## POST-MORTEM.

After death. A term generally applied to an autopsy or examina- tion of a dead body, to ascertain the cause of death, or to the Inquisition for that purpose by the coroner. See Wehle v. United States Mut Acc. Ass’n, 11 Misc. Rep. 36, 31 N. Y. Supp. 865 ; Stephens v. People, 4 Parker Cr.

R. (N. Y.) 475.

5e apparatus — Not carried into the 5th edition (1979).

## POST NATUS.

Born afterwards. A term applied by old writers to a second or younger son. It is used in private Interna- tional law to designate a person who was born after some historic event, (such as the American Revolution or the act of union be- tween England and Scotland.) and

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whoee rights or status will be governed or affected by the question of his birth before or after such event.

5e apparatus — Not carried into the 5th edition (1979).

## POST-NOTES.

A species of bank-notes payable at a distant period, and not on de- mand.

They are a species of obligation resorted to by banks when the exchanges of the countiy, and especially of the banks, have become em- barrassed by excessive speculations. Much con- cern is then felt for the country, and through the newspapers it is urged that post-notes be issued by the banks “for aiding domestic and foreign exchanges,” as a “mode of relief," or a "remedy for the distress,” and "to take the place of the southern and foreign exchanges."

And so presently this is done. Post-notes are therefore intended to enter into the circulation of the country as a part of its medium of ex- changes; the smaller ones for ordinary busi- ness, and the larger ones for heavier operations. They are intended to supply the place of de- mand notes, which the banks cannot afford to issue or reissue, to relieve the necessities of commerce or of the banks, or to avoid a compul- sory suspension. They are under seal, or with- out seal, and at long or short dates, at more or less interest, or without interest, as the necessi- ties of the bank may require. Appeal of Hogg, 22 Pa. 488.

5e apparatus — Not carried into the 5th edition (1979).

## POST-NUPTIAL.

After marriage. Thus, an agreement entered Into by a father after the marriage of his daughter, by which he engages to make a provision for her, would be termed a "post-nuptial agreement" Brown.

-Post-nuptial settlement. A settlement made after marriage upon a wife or chil- dren; otherwise called a “voluntary” settle- ment. 2 Kent, Comm. 173.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: fraudulent conveyances — voluntary settlements vs. creditors (Statute 13 Eliz. c. 5)]**

A post-nuptial settlement — made after marriage, hence 'voluntary' rather than for consideration of the marriage — carries the classic vulnerability of voluntary settlements to the claims of creditors as fraudulent conveyances.

Why: Genuine: the entry calls the settlement voluntary (2 Kent); vulnerability to creditors is the classic doctrine for voluntary settlements. Kept loose.

## POST OBIT BOND.

A bond given by an expectant, to become due on the death of a person from whom he will have property. A bond or agreement given by a borrower of money, by which he undertakes to pay a larger sum, exceeding the legal rate of inter- est, on or after the death of a person from whom he has expectations, In case of surviv- ing him. Crawford v. Russell, 62 Barb. (N. Y.) 92; Boynton v. Hubbard, 7 Mass. 119.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: A post-obit bond is an expectation of property ripening only at another's death. The verse states the principle of death-contingent expectations — a testament has no force while the testator lives. Epistolary teaching...

## POST-OFFZCB.

A bureau or department of government, or under governmental super- intendence, whose office Is to receive, trans- mit, and deliver letters, papers, and other mall-matter sent by post Also the office established by government In any city or town for the local operations of the postal system, for the receipt and distribution of mall from other places, the forwarding of mail there deposited, the sale of postage stamps, etc.

—Post-office department. The name of one of the departments of the executive branch of the government of the United States, which has charge of the transmission of the mails and the general postal business of the country.— Post- offiee order. A letter of credit furnished by the government, at a small charge, to facilitate the transmission of money.

5e apparatus — Not carried into the 5th edition (1979).

## POST TERMTNUM.

After term, or post- term. The return of a writ not only after the day assigned for Its return, but after the term also, for which a fee was due. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## POST, WRIT OF ENTRY IN.

In Eng- lish law. An abolished writ given by statute of Marlbridge, 52 Hen. III. c. 30, which pro- vided that wheu the number of alienations or descents exceeded the usual degrees, a new writ should be allowed, without any mention of degrees at all.

5e apparatus — Not carried into the 5th edition (1979).

## POSTAGE.

The fee charged by law for carrying letters, packets, and documents by the public malls.

—Postage stamp. A ticket issued by govern- ment, to be attached to mail-matter, and repre- senting the postage or fee paid for the transmis- sion of such matter through the public mails.

5e apparatus — Carried into the 5th edition (1979).

## POSTAL.

Relating to the malls; pertain- ing to the post-office.

—Postal currency. During a brief period following soon after the commencement of the civil war in the United States, when specie change was scarce, postage stamps were popu- larly used as a substitute; and the first issues of paper representatives of parts of a dollar. Issued

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by authority of congress, were called “postal currency.” This issue was soon merged in others of a more permanent character, for which the later and more appropriate name is “fractional currency.” Abbott.

5e apparatus — Carried into the 5th edition (1979).

## POBTEA.

In the common-law practice, a formal statement, Indorsed on the ni»i priua record, which gives an account of the pro- ceedings at the tr^al of the action. Smith, Act. 107.

5e apparatus — Not carried into the 5th edition (1979).

## POSTED WATEBS.

In Vermont Wa- ters flowing through or lying upon inclosed or cultivated lands, which are preserved for the exclusive use of the owner or occupant by his posting notices (according to the stat- ute) prohibiting all persons from shooting, trapping, or fishing thereon, under a prescrib- ed penalty. See State v. Theriault, 70 Vt. 617, 41 Atl. 1030, 43 L. R. A. 290, 67 Am. St. Rep. 695.

5e apparatus — Not carried into the 5th edition (1979).

## POSTEBIOBES.

Lot. This term was used by the Romans to denote the descend- ants In a direct line beyond the sixth degree.

5e apparatus — Not carried into the 5th edition (1979).

## POST PROLEM SUSCITATAM.

After Issue born, (raised.) Co. Litt. 196.

5e apparatus — Not carried into the 5th edition (1979).

## POST ROADS.

The roads or highways, by land or sea, designated by law as the ave- nues over which the malls shall be transport- ed. Railway Mall Service Cases, 13 Ct. Cl. 204. A “post route,” on the other hand, Is the appointed course or prescribed line of transportation of the mail. U. S. v. Koch- ersperger, 20 Fed. Cas. 803; Blackham v. Gresham (C. C.) 16 Fed. 611.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 7]**

The roads designated by law for carrying the mails rest on Congress's constitutional power to establish post offices and post roads.

Why: Genuine: the entry defines post roads; the clause is their constitutional basis. Direct.

## POSTERIORITY.

This Is a word of comparison and relation In tenure, the cor- relative of which is the word “priority.” Thus, a man who held lands or tenements of two lords was said to hold of his more an- cient lord by priority, and of his less ancient lord by posteriority. Old Nat. Brev. 94.

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It has also a general application In law con- sistent with its etymological meaning, and. as so used, It is likewise opposed to priority. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## POST-TERMINAL SITTINGS.

tings after term. See Sittings.

Sit- POSTERITY. All the descendants of a person In a direct line to the remotest generation. Breckinridge v. Denny, 8 Bush (Ky.) 527.

5e apparatus — Carried into the 5th edition (1979).

## POSTHUMOUS CHILD.

One born after the death of its father; or, when the Csesa- \ rean operation is performed, after that of the mother.

Fosthumus pro nato habetur. A post- humous child is considered as though born, [at the parent's death.] Hall v. Hancock, 15 Pick. (Mass.) 258, 26 Am. Dec. 598.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Posthumus pro nato habetur — 'a posthumous child is considered as though born']**

A posthumous child is considered as though born at the parent's death — and so inherits, under intestacy statutes, as an afterborn heir as if born in the parent's lifetime.

Why: Genuine: the entry states the maxim; the footnote gives its legal effect — inheritance rights of afterborn children. Direct.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Cymbeline, c. 1611]**

(paraphrase) Shakespeare's hero is literally named Posthumus because he was born after his father's death — the entry's definition ('one born after the death of its father') dramatized as a character's name. (paraphrase)

Why: Entry and character name encode the identical definition. The link is direct and illuminating. Paraphrase; no quote needed.

## POSTLIMINIUM.

Lat. In the civil law. A doctrine or fiction of the law by which the restoration of a person to any status or right formerly possessed by him was considered as relating back to the time of his original loss or deprivation; particu- larly In the case of one who, having been taken prisoner in war, and having escaped and returned to Borne, was regarded, by the aid of this fiction, as having never been abroad, and was thereby reinstated in all hlS rights. Inst. 1, 12, 5.

The term is also applied, in international law, to the recapture of property taken by an enemy, and its consequent restoration to its original owner.

Postliminium flnglt earn qui esptai eat in civitnte semper fnlsse. Postliminy feigns that he who has been captured has never left the state. Inst. 1, 12, 5 ; Dig. 49,' 51.

POSTLIMIN Y . See Postliminiok.

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5e apparatus — Not carried into the 5th edition (1979).

## POSTMAN.

A senior barrister In the court of exchequer, who has precedence In motions; so called from the place where he sits. 2 Bl. Comm. 28. A letter-carrier.

5e apparatus — Carried into the 5th edition (1979).

## POSTMASTER.

An officer of the United States, appointed to take charge of a local post-office and transact the business of re- ceiving and forwarding the mails at that point, and such other business as is commit- ted to him under the postal laws.

—Postmaster general. The head of the post-office department. He is one of the presi- dent's cabinet.

5e apparatus — Not carried into the 5th edition (1979).

## POSTNATI.

Those born after. See Post Natus.

5e apparatus — Not carried into the 5th edition (1979).

## POSTPONE.

To put off; defer; delay; continue; adjourn; as when a hearing is postponed. Also to place after; to set be- low something else; as when an earlier lien is for some reason postponed to a later lien.

The word “postponement,” in Bpeaking of legal proceedings, is nearly equivalent to "con- tinuance ;” except that the former word is gen- erally preferred when describing an adjourn- ment of the cause to another day during the same term, and che latter when the case goes over to another term. See State v. Underwood, 7(1 Mo. (K19 ; State v. Nathaniel, 5® La. Ann. 558, 26 South. 1008.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Qui prior est tempore, potior est jure — 'he who is first in time is stronger in right']**

Postponing an earlier lien to a later one displaces the priority rule stated in the classic maxim: he who is first in time is stronger in right.

Why: Genuine: the entry defines lien postponement; the maxim states the priority rule being displaced. Direct.

## POSTREMO-GENITURE.

Borough English, (q.

5e apparatus — Not carried into the 5th edition (1979).

# F

## FOBTULATIO.

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Lat. In Roman law.

A request or petition. This was the name of the first step in a criminal prosecution, corresponding somewhat to “swearing out a warrant” in modem criminal law. The ac- cuser appeared before the praetor, and stated his desire to Institute criminal proceedings against a designated person, and prayed the authority of the magistrate therefor.

In old English ecclesiastical law. A species of petition for transfer of a bishop.

— Postulatio aotionis. In Roman law. The demand of an action; the request made to the praetor by an actor or plaintiff for an action or formula of suit; corresponding with the application for a writ in old English practice. Or, as otherwise explained, the actor’s asking of leave to institute his action, on appearance of the parties before the u rector. Hallifax, Civil Law, b. 8, e. 9, no-. 12.

5e apparatus — Not carried into the 5th edition (1979).

# P

## POT-DE-VXN.

In French law. A sum of money frequently paid, at the moment of entering into a contract, beyond the price agreed upon. It differs from arrha, In this: that it Is no part of the price of the thing sold, and that the person who has received it cannot, by returning double the amount, or the other party by losing what he has paid, rescind the contract. 18 Toullier, no. 52.

5e apparatus — Not carried into the 5th edition (1979).

## POTENTATE.

A person who possesses great power or sway ; a prince, sovereign, or monarch.

By the naturalization law of the United States, an alien is required to renounce all -al- legiance to any foreign “prince, potentate, or sovereign whatever.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 8 U.S.C. § 1448(a) — the naturalization oath of renunciation and allegiance]**

The naturalization law's 'prince, potentate, or sovereign' language, which the entry quotes, is the renunciation clause of the oath of allegiance taken on naturalization.

Why: Genuine: the entry quotes the statute's language; § 1448(a) is the oath. Direct, no hop.

**[Scripture] — Scripture**

**[1 Timothy 6:15, KJV]**

Which in his times he shall shew, who is the blessed and only Potentate, the King of kings, and Lord of lords;

Why: Potentate is a prince, sovereign, or monarch — the term the naturalization oath makes the alien renounce. The verse uses the very word for the supreme sovereign: 'the blessed and only Potentate.' Paul's doxology, not...

**[Humanity] — Humanity / Fiction & Film**

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**[William Shakespeare, Henry IV, Part 2, c. 1598]**

'Uneasy lies the head that wears a crown' — the canonical literary line on the burden of the potentate, the prince or sovereign the entry defines.

Why: Entry: a person of great power/sway; prince, sovereign, monarch. The line is verbatim-certain and is the classic statement on such a figure. Genuine link.

## POTENTXA.

Lat Possibility; power.

— Potentia propinqus. Common possibility. See Possibility.

Potentl* debet sequi juxtitiam, asm anteoedere. 8 Bulst. 199. Power ought to follow Justice, not go before it

Poteatia est duplex, remote et propin- quai et poteatia remotissima et vaaa est quae auaquam venlt in actum. 11 Coke, 51. Possibility is of two kinds, remote and near; that which never comes into action is a power the most remote and vain.

Poteatia inu tills f rostra est. Useless

power is to no purpose. Branch, Princ.

5e apparatus — Not carried into the 5th edition (1979).

## POTENTIAL.

Existing in possibility but not in act ; naturally and probably expected to come into existence at some future time, though not now existing; for example, the future product of grain or trees already planted, or the successive future instalments or payments on a contract or engagement al- ready made. Things having a "potential ex- istence” may be the subject of mortgage, a *

slgnment, or sale. See Campbell v. Grant Co., 36 Tex. Civ. App. 641, 82 S. W. 796; Dickey v. Waldo, 97 Mich. 255, 56 N. W. 608, 23 L. R. A. 449 ; Cole v. Kerr, 19 Neb. 553, 26 N. W. 598; Long v. Hines, 40 Kan. 220, 19 Pac. 796, 10 Am. St Rep. 192.

Potest avis nnnnoisr* pro so et sals jnri quod pro so introdnetam est. Bract 20. One may relinquish for himself and his heirs a right which was introduced for his own benefit.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 9-204 — after-acquired property as collateral]**

Things of 'potential existence' — future products, future instalments — may be mortgaged, assigned, or sold; after-acquired property is governed as collateral by the secured-transactions article.

Why: Genuine: the entry states that potential-existence things may be mortgaged; § 9-204 governs after-acquired collateral. Direct.

## POTESTAS.

Lat In the civil law. Power ; authority ; domination ; empire, /m- pcrium , or the jurisdiction of magistrates. The power of the father over his children, patria potestas. The authority of masters over their slaves. See Inst 1, 9, 12 ; Dig. 2, 1, 13, 1 ; Id., 14, 1 ; Id. 14, 4, 1, 4.

Potestas atrlcte interpretatur. A pow- er is strictly interpreted. Jenk. Cent. p. 17, ease 29, In marg.

Potestas supreme setpsnm dlssolvere potest, ligare non potest. Supreme power can dissolve [unloose] but cannot bind Itself. Branch, Prine. ; Bacon.

Potior est conditio defendentis. Better is the condition of the defendant, [than that of the plaintiff.] Broom, Max. 740; Cowp. 343; Williams v. Ingell, 21 Pick. (Mass.) 289; White v. Franklin Bank, 22 Pick. (Mass.) 180, 187 ; Cranson v. Goss, 107 Mass. 440, 9 Am. Rep. 45.

5e apparatus — Not carried into the 5th edition (1979).

## POT WALLOPER.

A term formerly ap- plied to voters in certain boroughs of Eng- land, where all who boil ( wallop ) a pot were entitled to vote. Webster.

5e apparatus — Not carried into the 5th edition (1979).

## POULTRY COUNTER.

The name of a prison formerly existing in London. See Counteb.

POUND. 1. A place, inclosed by public authority, for the temporary detention of stray animals. Harriman v. Flfield, 36 Vt. 345; Wooley v. Groton, 2 Cush. (Mass.) 308.

A pound-overt is said to be one that is open, overhead ; a pound-covert is one that is close, or covered over, such as a stable or other build- ing.

2. A measure of weight. The pound avoir- dupois contains 7,000 grains ; the pound troy 5,760 grains.

In New York, the unit or standard of weight, from which_ all other weights shall be derived and ascertained, is declared to be the pound, of such magnitude that the weight of a cubic foot of distilled water, at its maximum density, weighed in a vacuum with brass weights, shall be equal to sixty-two and a half such pounds. 1 Rev. St. N. Y. p. 617, $ 8.

3. “Pound" is also the name of a denomi- nation of English money, containing twenty shillings. It was also used in the United

States, in computing money, before the intro- duction of the federal coinage.

— Pound breach. The act or offense of break- ing a pound, for the purpose of taking out the cattle or goods impounded. 3 Bl. Comm. 12.- 146; State v. Young, 18 N. H. 544. — Pound- heeper. An officer charged with the care of a pound, and of animals confined there. — Pound of land. An uncertain quantity of land, said to be about fifty-two acres.

5e apparatus — Not carried into the 5th edition (1979).

## POUNDAGE.

In praotioo. An allow- ance to the sheriff of so much In the pound upon the amount levied under an execution. Bowe v. Campbell, 2 Civ. Proc. R. (N. Y.) 234.

The money which an owner of animals Im- pounded must pay to obtain their release.

In old English law. A subsidy to the value of twelve pence in the pound, granted to the king,

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of all manner of merchandise of every merchant, as well denizen as alien, either exported or imported. Cowell.

; POUR ACQUIT. Fr. In French law. The formula which a creditor, prefixes to his signature when he gives a receipt.

5e apparatus — Not carried into the 5th edition (1979).

## POUR OOMPTE DE QUI IL APP ART- / LENT.

Fr. For account of whom it may concern.

5e apparatus — Not carried into the 5th edition (1979).

## POUR EAIRE PROOLAIMER.

L. Fr.

An anelent writ addressed to the mayor or bailiff of a city or town, requiring him tu make proclamation concerning nuisances, etc. Fitzh. Nat. Brev. 176.

5e apparatus — Not carried into the 5th edition (1979).

## POUR SEISIR TERRES.

L. Fr. An

ancient writ whereby the crown seized the land which the wife of its deceased tenant, who held in capite, hud for her dower, lr she married without leave. It was grounded on the statute Do Prwrogativa licgis, 7, (17 Edw. II. St. 1, c. 4.) It is abolished by 12 Car. II. c. 24.

5e apparatus — Not carried into the 5th edition (1979).

## POURPARLER.

Fr. In French law. The preliminary negotiations or bargainings which lead to a contract between the parties. As in English law, these form no part of the contract when completed. The term is also used In this sense in international law and the practice of diplomacy.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the parol evidence rule — prior negotiations merge into the final written agreement (UCC § 2-202)]**

Preliminary negotiations 'form no part of the contract when completed' — the parol evidence (merger) rule: the final written agreement supersedes prior bargainings.

Why: Genuine: the entry states the rule in so many words; the parol evidence rule is its doctrinal name. Direct.

## POURPARTY.

To make pourparty is to divide and sever the lands that fall to par- ceners, which, before partition, ' they held jointly and pro indiviso. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## POURPRESTURE.

An inclosure. Any- thing done to the nuisance or hurt of the public demesnes, or the highways, etc., by inclosure or building, endeavoring to make that private which ought to

be public. The difference between a pourpresture and a pub- lic nuisance is that pourpresture is an in- vasion of the jus privatum of the crown ; but where the jus publicum is violated It is a

nuisance. Skene makes three sorts of this offense; (1) Against the crown; (2) against the lord of the fee; (3) against a neighbor. 2 Inst 38 ; 1 Reeve, Eng. Law, 156.

5e apparatus — Not carried into the 5th edition (1979).

## POURSUIVANT.

The king’s messenger; a royal or state messenger. In the heralds’ college, a functionary of lower rank than a herald, but discharging similar duties, called also "poursuivant at arms.”

5e apparatus — Not carried into the 5th edition (1979).

## POURVEYANCE.

In old English law. The providing corn, fuel, victuals, and other necessaries for the king’s house. Cowell.

POURVEYOR, or PURVEYOR. A

buyer ; one who provided for the royal house- hold.

5e apparatus — Not carried into the 5th edition (1979).

## POUSTIE.

In Scotch law. Power. See Lieqe Poustie. A word formed from the Latin “potestas."

5e apparatus — Not carried into the 5th edition (1979).

## POVERTY AFFIDAVIT.

An affidavit, made and filed by one of the parties to a suit, that he is not able to furnish security for the final costs. The use of the term is confined to a few states. Cole v. Hoeburg, 36 Kan. 263, 13 Pac. 275.

5e apparatus — Carried into the 5th edition (1979).

## POWER.

In real property law. A

power is an authority to do some act in re- lation to real property, or to the creation or revocation of an estate therein, or a charge thereon, which the owner granting or reserving such power might himself per- form for any purpose. Civ. Code Dak. | 298 ; How. St. Mich. | 5591.

“Power” is sometimes used in the same sense as “right,” as when we speak of the powers of user and disposition which the owner of prop- erty has over it, but, strictly speaking, a pow- er is that which creates a special or exceptional right, or enables a person to do something which he could not otherwise do. Sweet.

Technically, an authority by which one person enables another to do some act for him. 2 Lil. Abr. 339.

An authority enabling a person to dispose, through the medium of the statute of uses, of an

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interest, vested either in himself or in another person. Sugd. Powers, 82. An au- thority expressly reserved to a grantor, or expressly given to another, to he exercised over lands, etc., granted or conveyed at the time of the creation of such power. Watk. Conv. 157. A proviso, in a conveyance un- der the statute of uses, giving to the grantor or grantee, or a stranger, authority to re- voke or alter by a subsequent act the estate first granted. 1 Steph. Comm. 505. See also Burleigh v. Clough, 52 N. H. 267, 13 Am. Rep. 23; Griffith v. Maxfield. 66 Ark. 513, 51 S. W. 832; Bouton v. Doty, 69 Conn. 531, 37 Atl. 1064; Dana v. Murray, 122 N.

Y. 604, 26 N. EX 21; Carson v. Cochran, 52 Minn. 67, 53 N. W. 1130; Law Guarantee & Trust Co. v. Jones, 103 Tenn. 245, 58 S. W. 219.

—General and special powers. A power is general when it authorizes the alienation in

fee, by means of a conveyance, will, or charge, of the lands embraced in the power to any alienee whatsoever. It is special (1) when the persons or class of persons to whom the dis- position of the lands under the power is to be made are designated, or (2) when the power authorizes the alienation, by means of a con- veyance, will, or charge, of a particular estate or interest less than a fee. Coster v. Lori Hard. 14 Wend. (N. Y.) 324; Thompson v. Garwood. 3 Whart. (Pa.) 305, 81 Am. Dec. 502.— Gen- eral and special powers in trust. A gen- eral power is in trust when any person or class of persons other than the grantee of such power is designated as entitled to the proceeds or any portion of the proceeds or other benefits to result from the alienation. A special power is in trust (1) when the disposition or charge which it authorizes is limited to be made to any person or class of persons other than the bolder of the power, or (2) when any person or class of persons other than the holder is designated as entitled to any benefit from the disposition or charge authorized by the power. Cutting v. Cutting, 20 Hun (N. Y.) 360: Dana v. Murray, 122 N. Y. 612. 26 N. E. 23; Wil- son’s Rev. & Ann. St. Okl. 1903, IS 4107, 4108. — Ministerial powers. A phrase used in English conveyancing to denote powers given for the good, not of tne donee himself exclusive- ly, or of the donee himself necessarily at all, but for the good of several persons, including or not including the donee also. They are so called because the donee ef them is as a min- ister or servant in his exercise of them. Brown.— Raked power. One which is simply collateral and without interest in the donee, which arises when, to a mere stranger, author ity is given of disposing of an interest, in which he had not before, nor has by the instrument creating the power, any estate whatsoever. Bergen v. Bennett, 1 Caines Cas. (N. Yd 15, 2 Am. Dec. 281 ; Atwater v. Perkins. 51 Conn. 198; Clark v. Homthal. 47 Miss. 534; Hunt v. Ennis, 12 Fed. Cas. 915.— Rowers append- ant and In gross. A power appendant is where a person has an estate in land, and the estate to be created by the power is to, or may, take effect in possession during the tenancy of the estate to which the power is annexed. A power in gross is where the person to whom it is given has an estate in the land, but the estate to be created under or by virtue of the power is not to take effect until after the de- termination of the estate to which it relates. Wilson v. Troup, 2 Cow. (N. Y.) 236, 14 Am. Dec 458; Garland v. Smith, 164 Mo. 1, 64

S. W. 188.

For other compound terms, such as “Power of Appointment,” “Power of Sale,” etc., see the following titles.

In constitutional law. The right to take action in respect to a particular subject-mat- ter or class of matters, involving more or less of discretion, granted by the constitu- tions to the several departments or branches of the government, or reserved to the people. Powers in this sense are generally classified as legislative, executive, and Judicial. See those titles.

— .Implied powers are such as are necessary to make available and carry into effect those powers which are expressly granted or con- ferred, and which must therefore be presumed to have been within the intention of the con- stitutional or legislative grant. Madison v. Daley (C. C.) 68 Fed. 755; People v. Pullman’s Palace Car Co., 175 111. 125, 51 N. EX 664. 64

L. R. A. 366; First M. EX Church v. Dixon, 178 111. 260, 52 N. EX 887.

la the law of corporations. The right or capacity to act or be acted upon in a par- ticular manner or in respect to a particular subject; as, the power to have a corporate seal, to sue and be sued, to make by-laws, to carry on a particular business or construct a given work. See Frellgh v. Saugerties, 70 Hun, 589, 24 N. Y. Supp. 182 ; In re Lima &

H. F. Ry. Co., 08 Hun, 252, 22 N. Y. Supp. «67 ; Baltimore v. Marriott, 9 Md. 160. EST. By this phrase is meant a right or power to do some act, together with an in- terest In the subject-matter on which the power is to be exercised. It is distinguished from a naked power, which Is a mere au- thority to act, not accompanied by any inter- est of the donee In the subject-matter of the

power.

Is it an interest in the subject on which the power is to be exercised, or is it an interest in that which is produced by the exercise of the power? We hold it to be clear that the inter- est which can protect a power after the death of a person who creates It must be an interest in the thing itself. In other words, the power must be engrafted on an estate ' in the thing. The words themselves would seem to import this meaning. “A power coupled with an in- terest” is a power which accompanies or is connected with an interest. The power and the interest are united in the same person. But, if we are to understand by the word inter- est” an interest in. that which is to be produc- ed by the exercise of the power, then they are never united. The power to produce the in- terest must be exercised, and by its exercise is extinguished. The power ceases when the in- terest commences, and therefore cannot, in accurate law language, be said to be coupled with it Hunt v. Rousmanier, 8 Wheat. 2(M, 5 L. Ed. 589. And see Missouri v. Walker, 125

U. S. 339, 8 Sup. Ct. 929, 31 L. Ed. 1 69: Grif- fith v. Maxfieid. 66 Ark. 513, 51 S. W. 832, Johnson v. Johnson. 27 S. C. 309. 3 S. E. 606, 13 Am. St Rep. 636; Yeates v. Pryor, 11 Ark 78; Alworth v. Seymour. 42 Minn. 526, «

X W. 1030; Hunt v. Ennis, 12 Fed. Cas. 915.

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5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

We got to fight the powers that be

The legal entry defines power as authority — the right to do acts the owner might himself perform. The lyric names 'the powers that be': power held by others as the thing to be fought — power as a lived relation rather than an abstraction.

Why: Added because 'the powers that be' is the idiom for institutional authority, exactly the legal sense of power the entry defines. The chorus is verbatim-certain; quoting the hook only.

**[Humanity] — Humanity / Fiction & Film**

**[Lord Acton, letter to Bishop Mandell Creighton, 1887]**

'Power tends to corrupt, and absolute power corrupts absolutely.' Acton's maxim is the most quoted wisdom on power in English, and it illuminates the concept the entry defines — authority to act — by naming its moral gravity.

Why: Entry defines power as authority to do some act. Acton's sentence is verbatim-certain and is the canonical maxim on power as such. Genuine classical-wisdom link.

## POWER OF APPOINTMENT.

A pow- er or authority conferred by one person by deed or will upon another (called the ‘‘do- nee’’) to appoint, that is, to select and nom- inate, the person or persons who are to re- ceive and enjoy an estate or an income there- from or from a fund, after the testator's death, or the donee's death, or after the ter- mination of an existing right or Interest. See Helnemann v. De Wolf, 25 R. I. 243, 55

AO. 707.

Powers are either: Collateral, which are giv- en to strangers ; i. e., to persons who have nei- ther a present nor future estate or interest in the land. These are also called simply ‘col- lateral,” or powers not coupled with an in- terest, or powers not being interests. These terms have been adopted to obviate the confu- sion arising from the circumstance that powers in gross have been by many called powers collat- eral. Or they are powers relating to the land. These are called “appendant” or "appurtenant,’ because they strictly depend upon the estate lim- ited to the person to whom they are given. Thus, where an estate for life is limited to a man, with a power to grant leases in posses- sion, a lease granted under the power may operate wholly out of the life-estate of the party executing it, and must in every case have its operation out of his estate during his life. Such an estate must be created, which will at- tach on an interest actually vested in himself. Or they arc called "in gross,” if given to a person who had an interest in the estate at the execution of the deed creating the power, or to whom an estate is given by the deed, but which enabled him to create such estates only as will not attach on the interest limited to him. Of necessity, therefore, where a man seised in fee settles his estate on others, re- serving to himself only a particular power, the power is in gross. A power to a tenant for lue to appoint the estate after his death among his children, a power to jointure a wife after his death, a power to raise a term of years to com- mence from his death, for securing younger children’s

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portions, are all powers in gross. An important distinction is established between cieneral and particular powers. By a general power we understand a right to appoint to whomsoever the donee pleases. By a particular power it is meant that the donee is restricted to some objects designated in the deed creating the power, as to his own children. Wharton.

We have seen that a general power is of- ficial when no person other than the grantee has, by the terms of its creation, any interest in its execution. A general power is t» truat when any person or class of persons, other than the grantee of such power, is dwtenn1®^ as entitled to the proceeds, or any portion of the proceeds, or other benefits to result from the alienation. Cutting v. Cutting, 20 Hun

IIWhen a power of appointment among a class reouires that each shall have a share, it 18 ca** ed*a “distributive” or “non-exclusive P°w®r. when it authorizes, but does not direct, a selec- lion of one or more to the exclusion of the others it is called an. "exclusive’ power, and ishalso distributive; when it «ivea^F pc^r of appointing to a certain number of the class, but not to all, it is exclusive only, and .not dis tributive. Leake. 389. A power authonzing the uouee either to give the whole to >one of a ^ class or to give it equally among such of them as he may select (but not to give one a .larger share than the others) is called a mixed pow- er. Sued. Powers. 448. Sweet.

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**[Law] — Law**

**[Law: 26 U.S.C. § 2041 — general powers of appointment]**

The donee's power to appoint who shall take the estate or fund has its signature modern consequence in federal estate tax: a general power of appointment is included in the holder's gross estate.

Why: Genuine: the entry defines the power; § 2041 is its federal tax home. POWER and POWER OF DISPOSITION left bare as twins.

## POWER OF ATTORNEY.

An instru- ment authorizing a person to act as the agent or attorney of the person granting it. See Letteb of Attobney.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Qui facit per alium facit per se — 'he who acts through another acts himself']**

The instrument authorizing one to act as another's agent rests on the classic agency principle: he who acts through another acts himself.

Why: Genuine: the entry defines the power of attorney as agency; the maxim is the classic statement of agency attribution. Direct.

## POWER OF DISPOSITION.

Every power of. disposition is deemed absolute, by means of which the donee of such power is enabled in his life-time to dispose of the en- tire fee for his own benefit; and, where a general and beneficial power to devise the in- heritance is given to a tenant for life or years, it is absolute, within the meaning of the statutes of some of the states. Code Ala. 1886, 1 1853. See Poweb of Appointment.

5e apparatus — Carried into the 5th edition (1979).

## POWER OF SALE.

A cluuse sometimes Inserted in mortgages and deeds of trust, giv- ing the mortgagee (or trustee) the right and power, on default in the payment of the debt secured, to advertise and sell the mortgaged property at public auction (but without re» sorting to a court for authority), satisfy the creditor out of the net proceeds, convey by deed to the purchaser, return the surplus, if any, to the mortgagor, and thereby divesi

the latter's estate entirely and without any subsequent right of redemption. See Capron v. Attleborough Bank, 11 Gray (Mass.) 493; Appeal of Clark, 70 Conn. 195, 39 Atl. 155.

5e apparatus — Carried into the 5th edition (1979).

## POYKDDIO.

See Poijjdinq.

5e apparatus — Not carried into the 5th edition (1979).

## POYNTNGS ACT.

An act of parlia- ment, made in Ireland, (10 Hen. VII. c. 22,

A D. 1495;) so called because Sir Edward Poynings was lieutenant there when it was made, whereby all general statutes before then made in England were declared of force in Ireland, which, before that time, they were hot 1 Broom & H. Comm. 112.

PRACTICALi. A practical construction of a constitution or statute is one deter- mined, not by judicial decision, but practice sanctioned by general consent. Farmers’ & Mechanics’ Bank v. Smith, 3 Serg. & K. (Pa.) 09; Bloxham v. Consumers' Electric Eight etc., Co., 36 Fla. 519, 18 South. 444, 29 L. B.

A. 007, 51 Am. St Bep. 44.

5e apparatus — Not carried into the 5th edition (1979).

## PRACTICE.

The form or mode of pro- ceeding in courts of justice for the enforce- ment of rights or the redress of wrongs, us distinguished from the substantive law which gives the right or denounces the wrong. The form, manner, or order of instituting and conducting a suit or other judicial pro- ceeding, through its successive stages 'to its end, in accordance with the rules and prin- ciples laid down by law or by the regulations and precedents of the courts. The term ap- plies as well to the conduct of criminal ac- tions as to civil suits, to proceedings in eq- uity as well as at law, and to the defense as well as the prosecution of any proceeding. See Fleischman v. Walker, 91 111. 321 ; Peo- ple v. Central Pac. R. Co., 83 Cal. 393, 23 Pac. -303 ; Kring v. Missouri, 107 U. S. 221, 2 Sup. Ct. 443, 27 L. Ed. 506; Opp v. Ten Eyck, 99 Ind. 351 ; Beardsley v. Llttell, 14 Blatchf. 102, Fed. Cas. No. 1,185 ; Union Nat. Bank v. Byram, 131 111. 92, 22 N. E. 842.

It may include pleading, but is usually em- ployed as excluding both pleading and evidence, and to designate alt the incidental acts and stens in the course of bringing matters pleaded

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to trial and proof, and procuring and enforcing judgment on them.

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**[Law] — Law**

**[Erie Railroad v. Tompkins, 304 U.S. 64 (1938)]**

Practice — the form of proceeding — 'as distinguished from the substantive law' is the distinction drawn in the leading federal case on substance versus procedure.

Why: Genuine: the entry defines practice against substantive law; Erie draws that line for federal courts. Confident on the citation.

## PRACTICE  COURT.

In English law. A court attached to the court of king's bench, which heard and determined common mat- ters of business and ordinary motions for writs of mandamus, prohibition, etc. It was usually called the "bail court” It was held by one of the puisne justices of the king's bench.

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## PRACTICES.

A succession of acts of a similar kind or in a like employment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## PRACTICES.

In Scotch law. The deci- sions of the court of session, as evidence of the practice or custom of the country. BeB.

5e apparatus — Carried into the 5th edition (1979).

## PRACTITIONER.

He who is engaged in the exercise or employment of any art or profession.

5e apparatus — Carried into the 5th edition (1979).

## PRXCEPTORES.

Eat. Masters. The chief clerks in chancery were formerly so called, because they had the direction of mak- ing out remedial writs. 2 Beeve, Eng. Law, 251.

PRiEGEPTORIES. In feudal law. A kind of benefices, so called because they were possessed by the more eminent templars, whom the chief master by bis authority created and called " Praceptores Templi."

' PR2EOIPE. Lat. In practice. An orlg- ihal *-rit, drawn up in the alternative, com- manding the defendant to do the thing re- qulred, or show the reason why he had not done it. 3 Bl. Oomm. 274.

Also an order, written out and signed, ad- dressed to the clerk of a court, and request- ing him to issue a particular writ

— Praecipe in capita. When one of the

king’s immediate tenants in capite was deforc- ed, bis writ of right was called a writ of "pr<r- cipe in capite."— Praecipe quad reddat. Command that he render; A writ directing the defendant to restore the possession of land, employed at the beginning of a common recov- ery.— Praecipe quod teneat oouventionem. The writ which commenced the action of cove- nant in fines, which are abolished by 3 A 4 ffm. IV. c. 74.— Praecipe, tenant to the. A person having an estate of freehold in pos- session, against whom the prtscipe was brought by a tenant in tail, seeking to bar his estate by a recovery.

5e apparatus — Not carried into the 5th edition (1979).

## PRJBOIPITIUM.

The punishment of casting headlong from some high place.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 4:29, KJV]**

And rose up, and thrust him out of the city, and led him unto the brow of the hill whereon their city was built, that they might cast him down headlong.

Why: Praecipitium is the punishment of casting headlong from a high place. The verse shows the act itself — the Nazareth crowd leading its victim to the brow of the hill to cast him down headlong. Narrative, not deity spee...

## PRSCIPUT OONTENTIONNEI,.

In

French law. Under the regime cn commun- auti, when that is of the conventional kind, if the surviving husband or wife is entitled to take any portion of the common property by a paramount title and before partition thereof, this right is called by the somewhat barbarous title of the conventional “ pr<e - ciput,” from “ pros ,” before, and “capere” to take. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PRXCO.

Lat In Roman law. A her- ald or crier.

5e apparatus — Not carried into the 5th edition (1979).

## PRABCOONITA.

Things to be previous- ly known in order to the understanding of something which follows. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

# F

## FRIED IA.

In the civil law. Lands; es- tates; tenements; properties. See Pa.«ni-

**[TEXT INCOMPLETE — scan limitation]**

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# V

**VM.**

— Prsedla bellies. Booty. Property seised in war— Prsedla stipendlaria. In the civil law. Provincial lands belonging to the people. —Prsedia tributarily. In the civil law. Pro- vincial lands belonging to the emperor.— Prse- dia rolantla. In the duchy of Brabant, cer- tain things movable, such as beds, tables, and other heavy articles of furniture, were ranked

among immovables, and were called “p radio volantia," or “volatile estates.” 2 Bl. Comm. 428.

PRJEDIAXi SERVITUDE. A right which is granted for the advantage of one piece of land over another, and which may be exer- cised by every possessor of the land entitled against every possessor of the servient land. It always presupposes two pieces of land ( prwdia ) belonging to different proprietors; one burdened with the servitude, called "pr te- dium servient," and one for the advantage of which the servitude is ■ conferred, called “prtedium dominant.’’ Mackeld Rom. Law, | 314.

PRsmtAi. TITHES. Such as arise merely and immediately from the ground ; as grain of all sorts, hops, bay, wood, fruit, herbs. 2 Bl. Comm. 23; 2 Steph. Comm. 722.

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# P

**PRABDIOTUS.**

Lat Aforesaid. Hob. 6.

Of the three words, "idem," "prtedictus," and “pne/utiM,” "idem” was most usually applied to plaintiffs or demandants; ‘‘preedict us,” to de- fendants or tenants, places, towns, or lands; and “ prccfetus ,” to persons named, not being actort or parties. Townsh. PI. 15. These words may all be rendered in English by “said” or “aforesaid.”

FRHEDrUM. Lat In the civil law. Land; an estate; a tenement; a piece of landed property. See Dig. 50, 16, 115.

— Pr tedium dominans. In. the civil law. The name given to an estate to which a servi- tude is due; the dominant tenement. Morgan v. Mason, 20 Ohio, 409, 55 Am. Dec. 404.— Prsedinm ruatienm. In Roman law. A rus- tic or rural estate. Primarily, this term de- noted an estate lying in the country, i. e„ be- yond the limits of the city, but it was applied to any landed estate or heritage other than a dwelling-house, whether in or out of the town. Thus, it included gardens, orchards, astures, meadows, etc. Mackeld. Rom. Law, 316. A rural or country estate ; an estate or piece of land principally destined or devoted to agriculture ; an empty or vacant space of

f round without buildings.— Prsedinm serv- ens. In the civil law. The name of an es- tate

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which suffers a servitude or easement to another estate; the servient tenement. Mor- gan v. Mason, 20 Ohio, 409, 55 Am. Dec. 464. —Prsedinm urban urn. In the civil law. A building or edifice intended for the habitation and use of man, whether built in cities or in the country. Colq. Rom. Civil Law. $ 937.

Prsedinm aervlt prsedio. Land is under servitude to land, [i. e., servitudes are not personal rights, but attach to the dominant tenement.] Tray. Lat. Max. 455.

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## PRADO.

Lat. In Roman law. A rob- ber. See Dig. 50, 17, 126.

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## PBJEFATU8.

Lat. Aforesaid. Some- times abbreviated to “prwfat," and “ p . fat.”

5e apparatus — Not carried into the 5th edition (1979).

## PRAFGCTURA.

In Roman law. Con-' quered towns, governed by an officer’ cal led a “prefect,” who was chosen In some Instances

by the people, In others by the prsetors. Butl. Hor. Jur. 29.

5e apparatus — Not carried into the 5th edition (1979).

## P1UEFEOTUS URBI.

Lat In Roman law. The name of an officer who, from the time of Augustus, had the superintendence of the city and its police, with jurisdiction extending one hundred miles from the city, and power to decide both civil and criminal cases. As he wus considered the direct rep- resentative of the emperor, much that pre- viously belonged to the preetor urbanut felt gradually into his hands. Colq. Rom. Civil Law, { 2395.

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## PRJEPECTU8 VIGILUM.

Lat. In Ro- man law. The chief officer of the night watch. His jurisdiction extended to certain offenses affecting the public peace, and even to larcenies ; but he could Inflict only slight punishments. Colq. Rom. Civil Law, f 2395.

5e apparatus — Not carried into the 5th edition (1979).

## PUSFECTUS VILLA.

The mayor of a town.

PRAFUnS. The fee paid on suing out. the writ of covenant, on levying fines, before the fine was passed. 2 Bl. Comm. 350.

FRAJDRAMENTlIM. In old English law. A preparatory oath.

PRAIiF.OATUM, Lat In Roman law. A payment in advance of the whole or part of the share

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which a given heir would be entitled to receive out of an Inheritance ; cor- responding generally to “advancement” in English and American law. See Mackeld. Rom. Law, f 762.

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## PRJEMIUM.

Lat. Reward ; compensa- tion. Premium assecurationis, compensation for insurance ; premium of insurance. Locc. de Jur. Mar. lib. 2, c. 5, S 6.

— Prsemium emancipation!*. In Roman law. A reward or compensation anciently al- lowed to a father on emancipating bis child, consisting of one-third of the child's separate and individual property, not derived from the father himself. See Mackeld. Rom. Law, | 605.— Prsemium pndicitiae. The price of chastity ; or compensation for loss of chnstity. A term applied to bonds and other engagements given for the benefit of a seduced female. Sometimes called "prasmium pudorit." 2 Wils. 330. .”.40.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:18, KJV]**

For the scripture saith, Thou shalt not muzzle the ox that treadeth out the corn. And, The labourer is worthy of his reward.

Why: Praemium is reward, compensation — for service, for insurance, for emancipation. The verse states the compensation principle in its classic form: the labourer is worthy of his reward. Paul's teaching, not deity speech…

## PRAEMUNIRE.

In English law. The name of an offense against the king and his government, though not subject to capital punishment. So called from the words of the writ which issued preparatory to the prosecution: “Praemunire fucias .4. B. quod sit coram nobis," etc. ; “Cause A. B. to be forewarned that he appear before us to an- swer the contempt with which he stands charged.” The statutes establishing this of- fense. the first of which was made in the thirty-first year of the reign of Edwnrd I., were framed to encounter the papal usurpa- tions In England ; the original meaning of

PR^NOMEN

the offense called “ prwmunire " being the In- troduction of a foreign power Into the king- dom, and creating imperium in impcrio, by paying that obedience to papal process which •constitutionally belonged to the king alone. The penalties of pramunirc were afterwards applied to other heinous offenses. 4 Bl. Comm. 103-117; 4 Steph. Comm. 215-217.

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## PRXNOMXN.

Lat. Forename, or first name. The first of the three names by which the Romans were commonly distinguished. It marked the individual, and was commonly •written with one letter; as "A." for “Au- lus ;” “C.” for “Caius,” etc. Adams, Rom. Ant. 35.

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## PROPOSITUS.

In old English law. An officer next In authority to the alderman of a hundred, called “praspasitus regius;” or a steward or bailiff of an estate, answering to the “wicnere.”

Also the person from whom descents are traced under the old canons.

— Praepositua eccleaise. A church-reeve, or warden. Spelman.— Praepoaitns villa. A

•constable of a town, or petty constable.

Pntprspen consilia re.ro sunt pros- per*. 4 Inst 57. Hasty counsels are rarely prosperous.

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## PRASCRIPTIO.

I.at. In the civil law. That mode of acquisition whereby one be- comes proprietor of a thing on the ground that he has for a long time possessed It as his own; prescription. Dig. 41, 3. It was anciently distinguished from “usucapio,” ( q . v.,) but was blended with it by Justinian.

Prsescriptlo est titular ex as* et tem- pore substantial* eapiens ab auctori- tate legis. Co. Lltt. 113. Prescription Is a title by authority of law, deriving Its force from use and time.

Prsescriptlo et executio non pertinent ad valorem eontraetns, sed ad tempos et modom actionis institnendse. Pre- scription and execution do not affect the va- lidity of the contract, but the time and man- ner of bringing an action. Pearsall v. Dwight, 2 Mass. 84, 3 Am. Dec. 35 ; Decouche v. Savetier, 3 Johns. Ch. (N. Y.) 190, 219, -8 Am. Dec. 478.

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**[Law] — Law**

**[Law: adverse possession and statutes of limitation for the recovery of land]**

Prescription — acquisition of title by long possession as one's own, 'a title by authority of law, deriving its force from use and time' — is the civil-law form of adverse possession and limitation of actions for the recovery of land.

Why: Genuine: the entry defines prescription as title by long possession; adverse possession is its common-law form. Direct.

## PRESCRIPTIONS.

Lat In Roman law. Forms of words (of a qualifying char- acter) inserted In the formulw in which the claims in actions were expressed; and, as they occupied an early place in the formulce, they were called by this name, t. e., qualifica- tions preceding the claim. For example. In an action to recover the arrears of an an- nuity, the claim was preceded by the words “so far as the annuity Is due and unpaid," or words to the like effect (“cujus rei diet fuit”) Brown.

Praesentare nihil aliud est foam pre- sto dare sen offere. To present is no more than to give or offer on the spot Co. Lltt 120.

Praesentia corporis tollit errorem no- minis; et veritas nominis tollit errorem demons trationis. The presence of the body cures error In the name; the truth of the name cures an error of description. Broom, Max. 637, 630, 640.

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## PRESES.

Lat. In Roman law. A presi- dent or governor. Called a “nomen gen- erate,” including pro-consuls, legates, and all who governed provinces.

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## PRESTARE.

Lat. In Roman law. “Prats tare” meant to make good, and, when used in conjunction with the words “dare,” “ facere “ oportere ,” denoted obligations of a personal character, as opposed to real rights.

Pnestat eautela qsam medela. Pre- vention is better than cure. Co. Lltt 3646.

Praeaumatur pro jnstiti* semtentiae.

The presumption should be in favor of the justice of a sentence. Best, Ev. Introd. 42

Praesnmitnr pro legitimatioae. The

presumption is in favor of legitimacy. 1 BL Comm. 457 ; 5 Coke, 986.

Pmesnmitur pro negaate. Jt is pre- sumed for the negative. The rule of the house of lords when the numbers are equal on a motlcp. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PRE8UMPTIO.

Lat Presumption; a presumption. Also intrusion, or the unlaw- ful taking of anything.

— Prwsumptio fortior. A strong presump- tion; a presumption of fact entitled to great weight. One which determines the tribunal in its belief of an alleged fact, without, however, excluding the belief of the possibility of its be- ing otherwise; the effect of which is to shift the burden of proof to the opposite party, and, if this proof be not made, the presumption is held for truth. Hub. Prsel. J. C. lib. 22, tit. 3. n. 16; Burrill, Circ. Ev. 66.— Prasamptio homlmls. The presumption of the man or in- dividual ; that is, natural presumption unfet- tered by strict rule.— Praesnmptio Juris. A legnl presumption or presumption of law : that is, one in which the law assumes the existence of something until it is disproved by evidence ; a conditional, inconclusive, or rebuttable pre- sumption. Best, Ev. § 43. — ■ Prassnmptlo juris et de jure. A presumption of law and of right ; a presumption which the law will not suffer to be contradicted ; a conclusive or ir- rebuttable presumption.— Praesumptio at- eiaaa. In Roman law. A presumption of law that property in the hands of a wife came to her as a gift from her husband and was not acquired from other sources; available only in doubtful cases and until the contrary is show* See Mackeld. Rom. Law, § 560.

PrsBaumptto, ex eo quod plerumqxe fit. Presumptions arise from what general-

PRiESUMPTIO VIOLENTA

ly happens. Post v. Pearsall, 22 Wend. <N. T.) 425, 475.

PnerampUo violent* pies* p rob* tie.

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Co. Litt. 65. Strong presumption Is full proof.

Pnesmmptio violent* valet la legs.

Strong presumption is of weight in law. Jenk. Cent p. 56, case 3.

Pmaumptionei aunt eonjeetnrae ex dgno verialmili *d prob*ndnm *aaumptse.

Presumptions are conjectures from probable proof, assumed for purposes of evidence. J. Voet, Com. ad Pand. 1. 22, tit 3, n. 14.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 301 — presumptions in civil cases]**

Presumption — including the strong presumption (præsumptio fortior) that shifts the burden of proof to the opposite party — is governed in federal civil practice by the presumptions rule.

Why: Genuine: the entry defines presumption and burden-shifting; Rule 301 is the federal rule. Direct.

## PR2ETERITIO.

Lat A passing over or omission. Used in the Roman law to de- scribe the act of a testator in excluding a given heir from the inheritance by silently passing him by, that is. neither instituting nor formally disinheriting him. See Mack- eld. Rom. Law, f 711.

Pnetextn licitl non debet admltti 1111- eltiua. Under pretext of legality, what is Illegal ought not to be admitted. Wing. Max. p. 728, max. 196.

FRiETEXTUS. Lat. A pretext; a pre- tense or color. Praetcxtu cujus, by pretense, or under pretext whereof. 1 Ld. Raym. 412.

PRS3TOR Lat. In Roman law. A municipal officer of the city of Rome, being the chief judicial magistrate, and possessing an extensive equitable jurisdiction.

— Praetor fldel-oommlssarins. In the civil law. A special prsetor created to pronounce judgment in cases of trusts or fidei-commitsa. Inst. 2. 23, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: pretermitted-heir statutes — omitted children take an intestate share (cf. UPC § 2-302)]**

The testator's silent passing-over of an heir has its modern form in pretermitted-heir statutes: a child omitted from the will takes an intestate share.

Why: Genuine: the entry defines the Roman passing-over; the statutes are its modern form. Kept loose.

## PREVARICATOR.

Lat In the civil law. One who betrays his trust, or is un- faithful to his trust. An advocate who aids the opposite party by betraying his client's cause. Dig. 47, 15, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 41:9, KJV]**

Yea, mine own familiar friend, in whom I trusted, which did eat of my bread, hath lifted up his heel against me.

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Why: A prevaricator is one who betrays his trust — the advocate who aids the opposite party against his client. The verse is the archetype of betrayed trust: the familiar friend in whom one trusted, lifting his heel. David...

## PRJEVENTO TERMINO.

In old Scotch practice. A form of action known in the forms of the court of session, by which a delay to discuss a suspension or advocation was got the better of. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## PRAGMATIC SANCTION.

In French law. An expression used to designate those ordinances which concern the most impor- tant objects of the civil or ecclesiastical ad- ministration. Merl. Rupert.

In the civil law. The answer given by the emperors on questions of law, when con- sulted by a corporation or the citizens of a province or of a municipality, was called a “pragmatic sanction.” Lee. El. Dr. Rom. I 53.

5e apparatus — Not carried into the 5th edition (1979).

## PRAGMATICA.

In Spanish colonial law. An order emanating from the sovereign, and differing from a cedula only in form and in the mode of promulgation. Schm. Civil Law, Introd. 93, note.

5e apparatus — Not carried into the 5th edition (1979).

## PRAIRIE.

An extensive tract of level or rolling land, destitute of trees, covered with coarse grass, and usually characterized by a deep, fertile soil. Webster. See Buxton v. Railroad Co., 58 Mo. 45; Brunell v. Hop- kins, 42 Iowa, 429.

5e apparatus — Not carried into the 5th edition (1979).

## PRATIQUE.

A license for the master of a ship to traffic in the ports of a given country, or with the inhabitants of a given port, upon the lifting of quarantine or pro- duction of a clean bill of health.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: federal quarantine and inspection authority (42 U.S.C. § 264)]**

Pratique — the license to traffic on lifting quarantine or producing a clean bill of health — belongs to the quarantine regime now administered under federal quarantine authority.

Why: Genuine: the entry defines the quarantine-release license; the statute is the modern federal quarantine authority. Borderline kept, framed as the modern regime.

## PRAXIS.

Lat. Use; practice.

Praxis judicum est interpret legum.

Hob. 96. The practice of the judges is the Interpreter of the laws.

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5e apparatus — Not carried into the 5th edition (1979).

## PRAT IN AID.

In old English practice. To call upon for assistance. In real actions, the tenant might pray in aid or call for assistance of another, to help him to plead, because of the feebleness or Imbecility of his own estate. 3 Bl. Comm. 300.

5e apparatus — Not carried into the 5th edition (1979).

## PRATER.

The request contained in a bill in equity that the court will grant the process, aid, or relief which the complainant desires. Also, by extension, the term is ap- plied to that part of the bill which contains this request

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PRATER.

OF PROCESS is a petition with which a bill in equity used to conclude, to the effect that a writ of subpoena might issue against the defendant to compel him to answer upon oath ail the matters charged against him in the bill.

5e apparatus — Not carried into the 5th edition (1979).

## PREAMBLE.

A clause at the beginning of a constitution or statute explanatory of the reasons for Its enactment and the ob- jects sought to be accomplished. See Town- send v. State, 147 Ind. 624, 47 N. E. 19. 37

L. R. A. 294, 62 Am. St Rep. 477 ; Fenner v. Luzerne County, 167 Pa. 632, 31 Atl. 862; Lloyd v. Urison, 2 N. J. Lnw, 224; Cover- dale v. Edwnrds, 155 Ind. 374, 58 N. E. 496.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Preamble to the U.S. Constitution — declaratory of purpose, not a grant of power]**

A preamble states the reasons for enactment and the objects sought — declaratory of purpose, not itself a grant of power, as with the Preamble to the United States Constitution.

Why: Genuine: the entry defines the preamble's office; the federal Preamble is the leading example with its no-power rule. Kept loose.

**[Humanity] — Humanity / Fiction & Film**

**[Preamble to the U.S. Constitution, 1787]**

'We the People of the United States, in Order to form a more perfect Union' — the most famous preamble in American law, and the exemplar of the entry: 'a clause at the beginning of a constitution... explanatory of the reasons for its enactment.'

Why: The entry defines the preamble; the U.S. Constitution's Preamble is its most famous instance. Verbatim-certain. (PEOPLE draws on the same source for a different entry — each link independently genuine.)

## PREAPPOINTED EVIDENCE.

The

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kind and degree of evidence prescribed in advance (as, by statute) as requisite for the proof of certain facts or the establishment of certain Instruments. It is opposed to casual evidence, which is left to grow nat- urally out of the surrounding circumstances.

5e apparatus — Not carried into the 5th edition (1979).

## PREAUDIENCE.

The right of being heard before another. A privilege belonging to the English bar, the members of which are entitled to be heard in their order, ac- cording to rank, beginning with the king’s attorney general, and ending with barristers at large. 3 Steph. Comm. 387, note.

5e apparatus — Not carried into the 5th edition (1979).

## PREBEND.

In English ecclesiastical law. A stipend granted in cathedral church- es; also, but Improperly, a prebendary. A simple prebend is merely a revenue; a pre- bend with dignity has some jurisdiction at- tached to it. The term “prebend” is general- ly confounded with "canonicnte ;” but there is a difference between them. The former is the stipend granted to an ecclesiastic in consideration of his officiating and serving in the church ; whereas the eanonicate is a mere title or spiritual quality which may exist independently of any stipend. 2 Steph. Comm. 674, note.

5e apparatus — Carried into the 5th edition (1979).

## PREBENDARY.

An ecclesiastical per- son serving on the staff of a cathedral, and receiving a stated allowance or stipend from the income or endowment of the cathedral, in compensation for his services.

PRECARTAK, or PRECES. Day-works which the tenants of certain manors were bound to give their lords In harvest time. Magna precaria was a great or general reap- ing day. Cowell.

PRECARIOUS . Liable to be returned or rendered up at the mere demand or re- quest of another; hence held or retained only on sufferance or by permission ; and by an extension of meaning, doubtful, uncertain, dangerous, very liable to break, fail, or ter- minate.

— Precarious circumstances. The circum- stances of an executor are precarious, within the meaning and intent of a statute, only when his character and conduct present such evi- dence of improvidence or recklessnss in the management of the trust-estate, or of his own, as in the opinion of prudent and discreet men endangers its security. Shields v. Shields, 60 Barb. (N. Y.) 56. — Precarious loan. A bail- ment by way of loan w'hieh is not to continue for any fixed time, but may be recalled at the mere will and pleasure of the lender. — Precari- ous possession. In modem civil law. posses- sion is called “precarious" which one enjoys by the leave of another and during his pleas- ure. Civ. Code La. 1900, art. 3556. — Precari- ous right. The right which the owner of a thing transfers to another, to enjoy the same until it shall please the owner to revoke it— Precarious trade. In international law. Such trade as may be carried on by a neutral between two belligerent powers by the mere sufferance of

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the latter.

5e apparatus — Not carried into the 5th edition (1979).

## PRECARIUM.

Lat. In the civil law. A convention whereby one allows another the use of a thing or the exercise of a right gra- tuitously till revocation. The bailee acquires thereby the lawful possession of the thing, except In certain cases. The bailor can re- demand the thing at any time, even should be have allowed it to the bailee for a design Dated period. Mackeld. Rom. Law, f 447.

5e apparatus — Not carried into the 5th edition (1979).

## PRECATORY.

Having the nature of prayer, request, or entreaty; conveying or embodying a recommendation or advice or

the expression of a wish, but not a positive command or direction.

— Precatory trust. A trust created by cer- tain words, which are more like words of en- treaty and permission than of command or cer- tainty. Examples of such words, which the courts have held sufficient to constitute a trust, are “wish and request,” “have fullest confi- dence,” “heartily beseech,” and the like. Ra- palje & Lawrence. See Hunt v. Hunt, 18 Wash. 14, 50 Pac. 578; Bohon v. Barrett, 79 Ky. 378; Aldrich v. Aldrich. 172 Mass. .101, 51 N. E. 449.— Precatory words. Words of entreaty, request, desire, wish, or recom- mendation, employed in wills, as distinguished from direct and imperative terms. 1 Williams, Ex’rs, 88, 89, and note. And see Pratt v. Miller. 23 Neb. 496. 37 N. W. 263; Pratt v. Pratt Hospital, 88 Md. 610, 42 Atl. 51.

PRECEDENCE, or PRECEDENCY.

The act or state of going before ; adjustment of place.

—Precedence, patent of. In English law. A grant from the crown to such barristers as it thinks proper to honor with that mark of dis- tinction, wnereby they are entitled to such rank and preaudience as are assigned in their respec- tive patents. 3 Steph. Comm. 274.

5e apparatus — Not carried into the 5th edition (1979).

## PRECEDENT.

An adjudged case or de- cision of a court of justice, considered as furnishing an example or authority for an Identical or similar case afterwards arising or a similar question of law.

A draught of a conveyance, settlement, will, pleading, bill, or other legal Instrument, which is considered worthy to serve as a pattern for future instruments of the same nature.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Stare decisis et non quieta movere]**

An adjudged case furnishing authority for later like cases binds under the doctrine of stare decisis: stand by decisions and do not disturb settled things.

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Why: Genuine: the entry defines the precedent as authority; stare decisis is the doctrine giving it that authority. Direct.

## PRECEDENT CONDITION.

Such as must happen or be performed before an es- tate can vest or be enlarged. See Condition Precedent.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the condition precedent in contract law (Restatement (Second) of Contracts)]**

A condition that must happen or be performed before an estate can vest or be enlarged is the condition precedent of contract law.

Why: Genuine: the entry defines it; the footnote names the doctrinal home. Kept loose; no section number invented.

## PRECEDENTS SUB SELENTIO.

Sir

lent uniform course of practice, uninter- rupted though not supported by legal de- cisions. See Calton v. Bragg, 15 East 226; Thompson v. Musser, 1 Dali. 464, 1 L. Ed. 222.

Precedents that pass sub alien tio are of little or no authority. 16 Via. Abr. 499.

5e apparatus — Not carried into the 5th edition (1979).

## PRECEPARTIUM.

Tbe continuance of a suit by consent of both parties. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PRECEPT.

In English and American law. An order or direction, emanating from authority, to an officer or body of officers, commanding him or them to do some act within the scope of their powers.

Precept ia not to be confined to civil proceed- ings, aud is not of a more restricted meaning than “process.” It includes warrants and pro- cesses in criminal as well as civil proceedings. Adams v. Vose, 1 Gray (Mass.) 51, 88.

"Precept” means a commandment In writ- ing, sent out by' a justice of tbe peace oc

other like officer, for the bringing of a per* son or record before him. Cowell.

The direction formerly Issued by a sheriff to the proper returning officers of cities and boroughs within his jurisdiction for the elec- tion of members to serve in parliament. X Bl. Comm. 178.

The direction by the judges or commis- sioners of assize to the sheriff for the sum- moning a sufficient number of jurors. 3 Steph. Comm. 316.

The direction Issued by the clerk of the peace to the overseers of parishes for making out the jury lists. 3 Steph. Comm. 516, note.

Ia old English criminal law. Instiga- tion to commit a crime. Bract, fol. 138ft; Cowell.

In Scotch law. An order, mandate, or warrant to do some act. The precept of sei- sin was the order of a superior to his bailie, to give infeftment of certain lands to his vassal. Bell.

In old French law. A kind of letters issued by the king in subversion of the laws, being orders to the judges to do or tolerate things contrary to law.

—Precept of clare constat. A deed in the Scotch law by which a superior acknowledges the title of the heir of a deceased vassal to suc- ceed to the lands.

■ FREGES. Lat. In Roman law. Prayers. One of the names of an application to the emperor. Tayl. Civil Law, 230.

5e apparatus — Not carried into the 5th edition (1979).

# F

## FREGES PRIM ART IE.

In English ec- clesiastical law. A right of the crown to name to the first prebend that becomes va- cant after the accession of the sovereign, in every church of the empire. This right was exercised by the crown of England in the reign of Edward I. 2 Steph. Comm. 670, note.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PRECINCT.

A constable's or police dis- trict. The immediate neighborhood of a palace or court. A poll-district. See Union Pac. Ry. Co. v. Ryan, 113 U. S. 516, 5 Sup. Ct. 601, 28 L. Ed. 1098; Railway Co. v. Oconto, 50 Wis. 189, 6 N. W. 607, 36 Am. Rep. 840; State v. Ansllnger, 171 Mo. 600, 71 S. W. 1041.

5e apparatus — Not carried into the 5th edition (1979).

## PREGIPE.

Another form of the name of the written instructions to the clerk of court ; also spelled "praecipe," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## PRECIPITIN TEST.

Precipltlns are formations in the blood of an animal In- duced by repeated injections into its veins of the blood-serum of an animal of another species; and their importance In diagnosis lies in the fact that when the blood-serum of an animal so treated is mixed with that of any animal of the second species (or a closely related species) and the mixture kept Bl.Law

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at a temperature of about 98 degrees for several hours, a visible precipitate will re- sult, but not so if the second ingredient of the mixture is drawn from an animal of ai) entirely different species. In medico-legai practice, therefore, a suspected .stain or clot having been first tested by other meth- ods and demonstrated to be blood, the ques- tion whether it is the blood of a human being or of other origin is resolved by mix- ing a solution of it with a quantity of blood- serum taken from a rabbit or some other small animal which has been previously prepared by injections of human blood- serum. After treatment as above described, the presence of a precipitate will furnish strong presumptive evidence that the blood tested was of human origin. The test is not absolutely conclusive, for the reason that blood from an anthropoid ape would produce thtf same result, in this experiment, as hu- man blood. But if the alternative hypo- thesis presented attributed the blood in ques- tion to some animal of an unrelated species (as, a dog, sheep, or horse) the precipitin test could be fully relied on, as also in the case where no precipitate resulted.

PRiCIPUT. In French law. A portion of an estate or inheritance which falls to one of the co-heirs over and above his equal share with the rest, and which is to be taken out before partition is made.

5e apparatus — Not carried into the 5th edition (1979).

## PRECLUDI NON.

Lat. In pleading. The commencement of a replication to a plea in bar, by which the plaintiff "says that, by reason of anything in the said plea alleged, he ought not to he barred from having and maintaining his aforesaid action against him, the said defendant, because he says." etc. Steph. PI. 440.

5e apparatus — Not carried into the 5th edition (1979).

## PRECOGNITION.

In Scotch practice. Preliminary examination. The Investigation of a criminal case, preliminary to commit- ting the accused for trial. 2 Alls. Crlm. Pr. 134.

5e apparatus — Not carried into the 5th edition (1979).

## PRECOGNOSCE.

In Scotch practice. To examine beforehand. Arkley, 232.

5e apparatus — Not carried into the 5th edition (1979).

## PRECONIZATION.

Proclamation.

5e apparatus — Not carried into the 5th edition (1979).

## PRECONTRACT.

A contract or engage- ment made by a person, which is of such a nature as to preclude him from lawfully entering into another contract of the same nature. See 1 Bish. Mar. & Dlv. if 112, 272.

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5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 7:39, KJV]**

The wife is bound by the law as long as her husband liveth; but if her husband be dead, she is at liberty to be married to whom she will; only in the Lord.

Why: A precontract is an engagement that precludes lawfully entering another contract of the same nature — paradigmatically a prior marriage. The verse states the binding force of the subsisting marriage that bars remarria...

## PREDECESSOR.

One who goes or has gone before ; the correlative of “successor.” Applied to a body politic or corporate, in the same sense as “ancestor” is applied to a nat- ural person. Lorillard Co. v. Peper (C. C.) 65 Fed. 598.

Ia Scotch law. An ancestor. 1 Karnes, Eq. 371.

PREDIAL SERVITUDE, a real or predial servitude Is a charge laid on an estate for the use and utility of another estate belonging to another owner. Civil Code La. art 647. See Predial Servitude.

5e apparatus — Carried into the 5th edition (1979).

## PREDICATE.

In logic. That which Is said concerning the subject In a logical prop- osition; as, “The law is the perfection of common sense.” "Perfection of common sense,” being affirmed concerning the law, (the subject) Is the predicate or thing predicated. Wharton ; Bourland v. Hildreth, 26 Cal. 232.

5e apparatus — Not carried into the 5th edition (1979).

## PREDOMINANT.

This term. In Its natural and ordinary signification. Is under- stood to be something greater or superior In power and Influence to others, with which It is connected or compared. So understood, a “predominant motive,” when several mo- tives may have operated, is one of greater force and effect, in producing the given re- sult, than any other motive. Matthews v. Bliss, 22 Pick. (Mass.) 63.

5e apparatus — Carried into the 5th edition (1979).

## PRE-EMPTION.

In International law. The right of pre-emption Is the right of a nation to detain the merchandise of strangers passing through her territories or seas, in order to afford to her subjects the preference of purchase. 1 Chit Com. Law, 103.

In English law. The first buying of a thing. A privilege formerly enjoyed by the crown, of buying up provisions and other necessaries, by the Intervention of the king’s purveyors, for the use of his royal house- hold, at an appraised valuation, In prefer- ence to all others, and even without consent of the owner. 1 Bl. Comm. 287 ; Garcia v. Callender, 125 N. Y. 307, 26 N. E. 283.

In the United States, the right Of pre- emption is a privilege accorded by the gov- ernment to the actual settler upon a certain limited portion of the public domain, to pur- chase such tract at a fixed price to the ex- clusion of all other applicants. Nix v. Allen, 112 U. S. 129, 5 Sup. Ct. 70, 28 L. Ed. 675; Bray v. Ragsdale, 53 Mo. 170.

. -Pre-emption claimant. One who has set- tled upon land subject to pre-emption, with the intention to acquire title to it, and has com- plied, or is proceeding to comply, in good faith, with the requirements of the law to perfect his right to it. Hosmer v. Wallace, 97 U. 8. 575. 581, 24 L. Ed. 1130.— Pre-emption en- try. See Entry.— Pre-emption right. The right given to settlers upon the public lands of the United States to purchase them at a limited price in preference to others.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: federal preemption — U.S. Const. art. VI, cl. 2 (the Supremacy Clause)]**

Beyond the older senses the entry gives (international detention, the crown's preference, the settler's purchase right), pre-emption in modern American law chiefly names federal displacement of state law under the Supremacy Clause.

Why: Genuine: the entry gives the older senses; the footnote adds the dominant modern sense sharing the name and preference logic. Direct.

**[Scripture] — Scripture**

**[Ruth 4:4, KJV]**

And I thought to advertise thee, saying, Buy it before the inhabitants, and before the elders of my people. If thou wilt redeem it, redeem it: but if thou wilt not redeem it, then tell me, that I may know: for there is none to redeem it beside thee; and I am after thee.

Why: Pre-emption is the right of first buying — the preference of purchase. The verse shows the kinsman-redeployer's pre-emptive right in action: the nearer kinsman holds the first right to redeem, Boaz after him. Boaz's s...

## PRE-EMPTIONER.

One who, by set- tlement updn the public land, or by cultiva- tion of a nortlon of it baa obtained the right to purchase a portion of the land thus settled upon or cultivated, to the exclusion of all other persons. Dillingham v. Fisher,

5 Wis. 480. And see Doe v. Beck, 108 Ala. 71, 19 South. 802.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Preemption Act of 1841 — settlers' rights to purchase public lands]**

The settler who by settlement or cultivation gains the exclusive right to purchase public land is the beneficiary of the federal preemption statutes for settlers.

Why: Genuine: the entry defines the pre-emptioner; the 1841 Act is the statute. Direct.

## PREFECT.

In French law. The name given to the public functionary who is charg- ed In chief with the administration of the laws. In each department of the country. Merl. Rupert. See Crespln v.

U. S-, 168 U.

S. 208, 18 Sup. Ct. 53, 42 L. Ed. 438. The term is also used, in practically the same sense, In Mexico. But In New Mexico, a pre- fect is a probate judge.

5e apparatus — Carried into the 5th edition (1979).

## PREFER.

To bring before; to prose- cute; to try; to proceed with. Thus, pre- ferring an indictment signifies prosecuting or trying an Indictment.

To give advantage, priority, or privilege ; to select for first payment, as to prefer one creditor over others.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 547 — preferential transfers avoidable in bankruptcy]**

To prefer one creditor over others — giving advantage or priority in payment — is the preferential transfer that bankruptcy law avoids.

Why: Genuine: the entry defines preferring a creditor; § 547 avoids such preferences. The cleanest headword-to-statute mapping of the operation. Confident.

## PREFERENCE.

The act Of an Insolvent debtor who, in distributing bis property or in assigning It for the benefit of his credit- ors, pays or secures to one or more credit- ors the full amount of their claims or a larger amount than they would be entitled to receive on a pro rata distribution.

Also the right held by a creditor. In virtue of some lien or security’, to be preferred above others (1. e., paid first) out of the debt- or’s assets constituting the fund for credit- ors. See Pirle v. Chicago Title & Trust Co., 182 U. 8. 438, 21 Sup. Ct. 900, 45 L. Ed. 1171 ; Ashby v. Steere, 2 Fed. Cas. 15 ; Chad- bourne v. Harding, 80 Me. 580, 16 AtL 248; Chism v. Citizens’ Bank, 77 Miss. 599, 27 South. 637; In re Ratliff (D. C.) 107 Fed. 80; Id re Stevens, 38 Minn. 432, 38 N. W. 111.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 547 — preferences]**

Transfers by an insolvent debtor favoring one creditor over others are the classic target of fraudulent-transfer and preference law: under the Bankruptcy Code the trustee may avoid certain pre-petition transfers made on account of an antecedent debt.

Why: Genuine, not forced: § 547 is literally titled 'Preferences' and governs exactly the act this entry defines — a debtor paying one creditor ahead of the pro rata distribution. The entry's own cited cases (e.g., Pirie v…

## PREFERENCE SHARES.

A term used in English law to designate a new Issue of shares of stock In a coinpauy, which, to facilitate the disposal of them, are accorded a' priority or preference over the original shares.

Such shares entitle their holders to a pref- erential dividend, so that a holder of them Is

entitled to have the whole of his dividend (or so much thereof as represents the extent to which his shares are, by the constitution of the company, to be deemed preference shares) paid before any dividend is paid to the ordinary shareholders. Mozley & Whlt-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## PREFERENTIAX ASSIGNMENT.

An

assignment of property for the benefit of creditors, made by an Insolvent debtor. In which it Is directed that a preference (right to be paid first In full) shall be given to a creditor or creditors therein named.

5e apparatus — Not carried into the 5th edition (1979).

## PREFERRED.

Possessing or accorded a priority, advantage, or privilege. Gener- ally denoting a prior or superior claim or right of payment as against another thing of

the same kind or class. See State v. Cheraw

A C. R. Co., 16 S. C. 528.

—Preferred creditor. A creditor whom the debtor has directed shall be paid before other creditors. — Preferred debt. A demand which has priority ; which is payable in full before others are paid at all.— Preferred dividend. See Dividend.-- Preferred stock. See Stock.

5e apparatus — Carried into the 5th edition (1979).

## PREGNANCY.

In medical Jurispru- dence. The state of a female who has with- in her ovary or womb a fecundated germ, which gradually becomes developed in the latter receptacle. DungL Med. Diet.

— Pregnancy, plea of. A plea which a wo- man capitally convicted may plead in stay of execution; for this, though it is no stay of judgment, yet operates as a respite of execu- tion until she is delivered. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:16, KJV]**

The fathers shall not be put to death for the children, neither shall the children be put to death for the fathers: every man shall be put to death for his own sin.

Why: The entry's legal core is the plea of pregnancy: a capitally convicted woman's execution is stayed till she is delivered, so the unborn child does not die for the mother's crime. This verse states the principle beneat...

## PREGNANT NEGATIVE.

See Nega- tive Pregnant.

5e apparatus — Carried into the 5th edition (1979).

## PREJUDICE.

A forejudgment; bias; preconceived opinion. A leaning towards one side of a cause for some reason other than a conviction of its justice. Willis v. State, 12 Ga. 419; Uungerford ▼. Cushing, 2 Wls. 405; State y. Anderson, 14 Mont. 541, 87 Pac. 1; Hinkle v. State, 94 Ga. 595, 21 S.

E. 595; Keen v. Brown, 46 Fla. 487, 35 South. 401.

The word “prejudice” seemed to imply nearly the same thing as “opinion," a prejudgment of the case, and not necessarily an enmity or ill will against either party. Com. v. Webster, 5 Cush. (Mass.) 297, 52 Am. Dec. 711.

“Prejudice’’ also means injury, loss, or damnification. Thus, where an offer or ad- mission is made “without prejudice,” or a motion is denied or a bill in equity dismissed “without prejudice,” it is meant as a declara- tion that no rights or privileges of the party concerned are to be considered as thereby waived or lost, except in so far as may be expressly conceded or decided.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 41 — effect of dismissal]**

The entry's 'without prejudice' sense is the procedural one: under Fed. R. Civ. P. 41 a dismissal 'without prejudice' is not an adjudication on the merits, so the party's rights are preserved and the claim may be refiled.

Why: Genuine: the entry defines 'without prejudice' as a declaration that no rights are waived or lost; Rule 41 is the federal rule that gives that phrase its operative meaning for dismissals.

**[Scripture] — Scripture**

**[Leviticus 19:15, KJV]**

Ye shall do no unrighteousness in judgment: thou shalt not respect the person of the poor, nor honour the person of the mighty: but in righteousness shalt thou judge thy neighbour.

Why: Prejudice is defined as bias, a leaning toward one side for reasons other than conviction of its justice. This verse is the scriptural prohibition of exactly that in judgment — neither favoring the poor nor honoring t...

**[Humanity] — Humanity / Fiction & Film**

**[Austen, Pride and Prejudice, 1813]**

(paraphrase) Elizabeth Bennet judges Darcy on first impressions and wounded pride; the novel's whole arc is prejudice formed before the evidence and unmade by it. [Austen, Pride and Prejudice, 1813] (paraphrase)

Why: Black's defines prejudice as 'a forejudgment; bias; preconceived opinion... a leaning towards one side of a cause for some reason other than a conviction of its justice.' Austen's novel is the English novel of exactly...

## PREEATE.

A clergyman of a superior order, as an archbishop or a bishop, having authority over the lower clergy ; a dignitary of the church. Webster.

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**[Scripture] — Scripture**

**[Hebrews 5:4, KJV]**

And no man taketh this honour unto himself, but he that is called of God, as was Aaron.

Why: A prelate is a clergyman of superior order, a dignitary of the church. This verse states the calling-not-taking principle of priestly office — the office is received, not seized.

## PR&L&VEMENT.

Fr. In French law. A preliminary deduction; particularly, the portion or share which one member of a firm is entitled to take out of the partnership as- sets before a division of the property is made between the partners.

5e apparatus — Not carried into the 5th edition (1979).

## PRELIMINARY.

Introductory ; initia- tory; preceeding; temporary and provision- al; as preliminary examination, injunction, articles of peace, etc.

— Preliminary act. In English admiralty

practice. A document stating the time and place of a collision between vessels, the names of the vessels, and other particulars, required to be filed by each solicitor in actions for damage by such collision, unless the court or a judge ■hall otherwise order. Wharton. — Prelimina- ry injunction. See Inj unction.— Preliminary proof. In insurance. The first proof offered of a loss occurring under the policy, usually sent in to the underwriters with the notification of claim.

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## PREMEDITATE.

To think of an act beforehand ; to contrive and design ; to plot or lay plans for the execution of a purpose. See Deliberate.

PREMEDITATION, The act of medi- tating in advance; deliberation upon a con- templated act ; plotting or contriving ; a de- sign formed to do something before it is done. See State v. Spivey, 132 N. C. 989, 43 S. E. 475; Fahnestock v. State, 23 Ind. 231; Com. v. Perrier, 3 Phlla. (Pa.) 232; Atkinson v. State, 20 Tex. 531; State v. Reed, 117 Mo. 604, 23 S. W. 886; King v. State. 91 Tenn. 617, 20 S. W. 169 ; State v. Carr, 53 Vt. 46; State v. Dowden, 118 N.

C. 1145, 24 S. E. 722; Savage v. State, 18 Fla. 965; Com. v. Drum, 58 Pa. 16; State ▼. Llndgriad, 33 Wash. 440, 74 Pac. 565.

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**[Law] — Law**

**[Axiom: premeditation and deliberation distinguish first-degree murder from lesser homicide]**

Premeditation and deliberation — thinking of the act beforehand, contriving and designing it — are the elements that elevate an intentional killing to murder in the first degree.

Why: Genuine: the entry's long string of murder cases all turn on exactly this distinction; the axiom states the principle those cases apply, without inventing any citation.

**[Scripture] — Scripture**

**[Numbers 35:21, KJV]**

he that smote him shall surely be put to death; for he is a murderer

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Why: Premeditation is contriving beforehand — the core of malice aforethought in homicide. Numbers 35 draws scripture's own distinction between the deliberate striker (vv. 20-21) and the unpremeditated killing (vv. 22-23).

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Macbeth, 1606]**

Macbeth, alone before Duncan's chamber, rehearses the murder in his mind's eye — premeditation staged as soliloquy: 'Is this a dagger which I see before me, / The handle toward my hand?' [Shakespeare, Macbeth, 1606]

Why: The entry's sense is 'to think of an act beforehand; to contrive and design.' The dagger soliloquy is literally the act of premeditation performed on stage: the deed contrived in darkness before it is done. Quote is v...

## PREMIER.

A principal minister of state; the prime minister.

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## PREMIER SERJEANT, THE / QUEEN’S.

This officer, so constituted by letters patent, has preaudience over the bar after the attorney and solicitor general and queen's advocate. 3 Steph. Comm. (7th Eld.) 274, note.

• PREMISES. That which is put before; that which precedes; the foregoing state- ments. Thus, in logic, the two Introductory propositions of the syllogism are called the “premises,” and from them the conclusion is deduced. So, in pleading, - the expression “in consideration of the premises” frequently occurs, the meaning being “ia consideration of the matters hereinbefore stated.” See Teutonia F. Ins. Co. v. Mund, 102 Pa. 93; Alaska Imp. Co. v. Hirsch, 119 Cal. 249, 47 Pac. 124.

In conveyancing. That part of a’ deed which precedes the habendum, in which are set forth the names of the parties with their titles and additions, and in which are recited such deeds, agreements, or matters of fact as are necessary to explain the reasons upon which the present transaction Is founded; and it Is here, also, the consideration on which it is made is set down and the cer- tainty of the thing granted. 2 Bl. Comm. 298. And see Miller v. Graham, 47 S. C. 288, 25 S. E. 165 ; Brown v. Mauter, 21 N. H. 533, 53 Am. Dec. 223; Rouse v. Steamboat Co., 59 Hun, 80, 13 N. X. Supp. 126.

In estates. Lands and tenements ; an es- tate ; the subject-matter of a conveyance.

The term “premises” is used in common par- lance to signify land, with its appurtenances; but its usual and appropriate meaning in a conveyance is the thing demised or granted by the deed. New Jersey Zinc Co. v. New Jersey Franklinite Co., 13 N. J. Eq. 322 ; In re Rohrtocher's Estate, 168 Pa. 158, 32 Atl. 30: Cum- mings v. Dearborn, 56 Vt. 441 ; State v. French, 120 Ind. 229, 22 N. E. 108.

The word Is also used to denote the sub- ject-matter Insured In a policy. 4 Campb. 89.

In equity pleading. The stating part of a bill. It contains a narrative of the facts and circumstances of the plaintiff’s case, and the wrongs of which he complains, and the names of the persons by whom done and against whom he seeks redress. Story, Eq. PL | 27.

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## PREMIUM.

The sum paid or agreed to be paid by an assured to the underwriter as the consideration for the insurance; being a certain rate per cent, on the amount in- sured. 1 PhlL Ins. 205; State v. Pittsburg, etc., Ry. Co., 68 Ohio St 9, 67 N. E. 93, 64 It. R. A. 405, 96 Am St Rep. 635; H1U v. Insurance Co., 129 Mich. 141, 8S N. W. 392.

A bounty or bonus ; a consideration given to invite a loan or a bargain ; as the consideration paid to the assignor by the assignee of a lease, or to the transferrer by the transferee of shares of stock, etc. So stock is said to be “at a premium” when its market ])rlce exceeds its nominal or face value. Rhode Island ’Hospital Trust Co. v. Arming- ton, 21 R L 33, 41 Atl. 571 ; White v. Wil- liams, 90 Md. 719, 45 AtL 1001 ; Washington, etc., Ass’n v. Stanley, 38 Or. 319, 63 Pac. 489, 58 L. R. A. 816, 84 Am. St Rep. 793; Building Ass'n v. Eklund, 190 111. 257, 60

N. E. 521, 52 Ik. R. A. 637. See Pah.

In granting a lease, part of the rent is sometimes capitalized and paid in a lump sum at the time the lease is granted. This is called a “premium.”

— Premium note. A promissory note given by the insured for part or all of the amount of the premium.— Premium pudicitlse. The price of chastity. A compensation for the loss of chastity, paid or promised to, or for the benefit of, a seduced female.

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**[Law] — Law**

**[Axiom: every enforceable promise requires consideration]**

The premium is the consideration for the underwriter's promise: the price paid for coverage, without which the insurance contract lacks the bargained-for exchange that makes it enforceable.

Why: Genuine but borderline: the entry itself defines premium as 'the consideration for the insurance'; the axiom states the contract principle that gives the definition its legal force. Kept because it illuminates rather...

## PRJ3MUNIRE.

See Pb£MC7nir&.

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## P REND A.

In Spanish law. Pledge.

White, New Recop. b. 2, tit. 7.

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## PRENDER, PRENDRE.

L. Fr. To

take. The power or right of taking a thing without waiting for it to be offered. See A Pbendeb.

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## PRENDER DE BARON.

I* Fr. In Old

English law. A taking of husband; mar- riage. An exception or plea which might be used to disable a woman from pursuing an appeal of murder against the killer of her former husband. Staundef. P. C. lib. 3, c. 59.

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## PREPENSE.

Forethought ; preconceiv- ed ; premeditated. See Territory v. Biuiul- gan, 1 Dak. 451, 46 N. W. 597 ; People v. Clark, 7 N. Y. 385.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:21, KJV]**

he that smote him shall surely be put to death; for he is a murderer

Why: Prepense means forethought, premeditated — the same concept as premeditate. Same verse, same reasoning: scripture's deliberate-vs-accidental killing distinction.

## PREPONDERANCE.

This word means something more than ' “weight ;” it denotes a superiority of weight, or outweighing. The words are not synonymous, but substantial- ly different. There is generally a “weight” of • evidence on each side in case of con- tested facts. But Juries cannot properly act upon the weight of evidence, in favor of the one having the onus, unless it overbear, in some degree, the weight upon the other side. Shinn v. Tucker, 37 Ark. 688. And see Hoff- man v. Loud, 1U Mich. 158, 69 N. W. 231; Willcox v. Hines, 100 Term. 524, 45 8. W. 781, 66 Am. St Rep. 761; Mortimer v. Mc- Mullen, 202 I1L 413, 67 N. E. 20; Bryan v. Chicago, etc., R. Co., 63 Iowa, 464, 19 N. W. 295.

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**[Law] — Law**

**[Addington v. Texas, 441 U.S. 418 (1979)]**

Preponderance of the evidence — proof that a fact is more likely than not — is the default burden of persuasion in civil cases, sitting below 'clear and convincing evidence' and 'beyond a reasonable doubt.'

Why: Genuine: the entry defines the comparative 'superiority of weight' standard; Addington is the Supreme Court decision that canvassed and ranked the three standards of proof, so it authoritatively situates preponderance…

**[Scripture] — Scripture**

**[Job 31:6, KJV]**

Let me be weighed in an even balance, that God may know mine integrity.

Why: Preponderance is superiority of weight in evidence. Job invokes the even balance — the scales image — in a judicial self-defense, asking to be weighed fairly.

## PREROGATIVE.

An exclusive or pecu- liar privilege. The special power, privilege. Immunity, or advantage vested In an offi- cial person, either generally, or In respect to the things of his office, or in

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an official body, as a court or legislature. See Attor- ney General v. Blossom, 1 Wis. 817 ; Attor- ney General v. Eau Claire, 37 Wis. 443.

In English law. That special pre-emi- nence which the king (or queen) has over and above all other persons, in right of his (or her) regal dignity. A term used to de- note those rights and capacities which the sovereign enjoys alone, in contradistinction to others. 1 Bl. Comm. 239.

—Prerogative court. In English • law. A court established for the trial of all testamen- tary causes, where the deceased left bona nota- bilta within two different dioceses; in which case the probate of wills belonged to the arch- bishop of the province, by way of special prerog- ative. And ail causes relating to the wills, ad- ministrations, or legacies of such persons were originally cognizable herein, before a judge ap- pointed by the archbishop, called the “judge of the prerogative court,” from whom an ap- peal lay to the privy council. 3 Bl. Comm. 66; 3 Steph. Comm. 432. In New Jersey the prerogative court is the court of appeal from decrees of the orphans’ courts in the several counties of the state. The court is held before the chancellor, under the title of the “ordinary.” See In re Coursen’s Will, 4 N. J. Eq. 413; Flanigan v. Guggenheim Smelting Co., 63 N. J. Law, 047, 44 Atl. 762; Robinson v. Fair. 128

U. S. 53, 9 Sup. Ct. 30, 32 L. Ed. 415.— Pre- rogative law. That part of the common law of England wiiich is more particularly applic- able to the king. Com. Dig. tit "Ley,” A.— Prerogative writs. In English law, the name is given to certain judicial writs issued by the courts only upon proper cause shown, never as a mere matter of right, the theory being that they involve a direct interference by the government with the liberty and property of the subject, and therefore are justified only as an exercise of the extraordinary power (pre- rogative) of the crown. In America, a theory has sometimes been advanced that these writs should issue only in cases publici juris and those affecting the sovereignty of the state, or its franchises or prerogatives, or the liberties of the people. But their issuance is now general- ly regulated by statute, and the use of the term “prerogative,” in describing them, amounts only to a reference to their origin and history. These writs are the writs of mandamus, procedendo, prohibition, quo warranto, habeas corpus, and certiorari. See 3 Steph. Comm. 629 ; Territory

▼. Ashenfelter, 4 N. M. 93, 12 Pac. 879 ; State y. Archibald, 5 N. D. 359, 66 N. W. 234 ; Du- luth Elevator Co. v. White, 11 N. D. 534, 90

N. W. 12; Attorney General v. Eau Claire, 37 Wis. 400.

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 9, cl. 2 — the Suspension Clause]**

Of the prerogative writs the entry lists — mandamus, prohibition, quo warranto, habeas corpus, certiorari — the great writ of habeas corpus survives constitutionally: its privilege may not be suspended except in rebellion or invasion.

Why: Genuine: the entry traces these writs to the crown's extraordinary power; the Suspension Clause is the American constitutional home of the most important of them, showing the doctrine's living continuation rather

than...

**[Scripture] — Scripture**

**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: Prerogative is the sovereign's peculiar pre-eminence. This verse is the theological root the old law appealed to for royal prerogative — all ruling power ordained of God. (Basis of authority, not the privilege itself...

## PRES.

JU Fr. Near. Oy pres, so near; as near. See Cr Pass.

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## PRESBYTER.

Lat In civil and ec- clesiastical law. An elder ; a presbyter ; a priest. Cod. 1, 3, 6, 20; Nov. 6.

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**[Scripture] — Scripture**

**[Hebrews 5:4, KJV]**

And no man taketh this honour unto himself, but he that is called of God, as was Aaron.

Why: A presbyter is an elder, a priest. Same verse as PREEATE: the calling-not-taking principle of the priestly office.

## PRESBYTERIUM.

That part of the church where divine offices are performed; formerly applied to the choir or chancel, be- cause it was the place appropriated to the bishop, priest, and other clergy, while the laity were confined to the body of the church. Jacob.

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## PRESCRIBABLE.

That to which a right may be acquired by prescription.

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## PRESCRIBE.

To assert a right or title to the enjoyment of a thing, on the ground, of having hitherto had the uninterrupted and Immemorial enjoyment of it

To direct; define; mark out In modern statutes relating to matters of an administra-' live nature, such as procedure, registration, etc.. It is usual to indicate In general terms the nature of the proceedings to be adopted, and to leave the details to be prescribed or regulated by rules or orders to be made for. that purpose in pursuance of an authority contained In the act. Sweet. And see Mans- field v. People, 164 111. 611, 45 N. E. 976; Ex parte Lothrop, 118 U. S. 113, 6 Sup. Ct 984, 30 L. Ed. 108; Field v. Marye, 83 Va. 882, 3 S. E. 707.

PRESCRIPTION . A mode of acquiring title to Incorporeal hereditaments grounded on the fact of immemorial or long-continued enjoyment. See Lucas v. Turnpike Co., 36

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W. Va. 427, 15 S. E. 182; Gayetty v. Betbune, 14 Mass. 52, 7 Am. Dec. 188; Louisville &

N. R. Co. v. Hays, 11 Lea (Tenn.) 388, 47 Am. Rep. 291; Clarke v. Clarke, 133 Cal. 667, 66 Pac. 10; Alhambra Addition Water Co. v. Richardson, 72 Cal. 598, 14 Pac. 379; Stevens v. Dennett, 51 N. H. 329.

Title by prescription is the right which a possessor acquires to property by reason of the continuance of his possession for a period Of time fixed by the laws. Code Ga. 1882, f 2678.

"Prescription" is the term usually applied to incorporeal hereditaments, while "adverse possession" Is applied to lands. Hindley v. Metropolitan El. R. Co., 42 Misc. Rep. 56, 85 N. X. Supp. 561.

In Louisiana, prescription is defined as a manner of acquiring the ownership of prop- erty, or discharging debts, by the effect of time, and under the conditions regulated by law. Each of these prescriptions has its special and particular definition. The prescription by which the ownership of proper- ty is acquired, is a right by which a mere pos- sessor acquires the ownership of a thing, which he possesses by the continuance of his possession during the time fixed by law. The prescription by which debts are released, is a peremptory and perpetual bar to every species of action, real or personal, when the' creditor has been silent for a certain time without urging his claim. Civ. Code T-a. arts. 3457-3459. In this sense of the term it is very nearly equivalent to what Is else- where expressed by "limitation of actions," or rather, the "bar of the statute of limita- tions."

"Prescription" and "custom" hre frequently confounded in common parlance, arising perhaps1 from the fact that immemorial usage was es- sential to both of them; but, strictly, they ma- terially differ from one another, in that custom is properly a local impersonal usage, such as borough-English, or postremogeniture, which is annexed to a given eslv.te, while prescription is Bimply personal, as that a certain man and his ancestors, or those whose estate be enjoys, have immemorialiy exercised a right of pasture-com- mon in a certain parish. Again, prescription, has its ■ origin, in a grant, evidenced by usage,, and is allowed on account of its loss, either ac-; tual or supposed, and therefore only those things, can be prescribed for which could be raised by, a grant previously to 8 A>9 Viet. c. 106, | 2;, but this principle does not necessarily bold in. the case of a custom. Wharton.

The difference between "prescription," "cus- tom," and "usage" is also thus Btated: "Pre-, scription hath respect to a certain person who, by intendment, may have continuance forever, as, for instance, he and all they whose estate he hath in such a thing, — this is a prescription;, while custom is local, and always applied to a certain place, and is common to all ; while usage differs from both, for it may be either to persons or places." Jacob.

— Corporations bjr prescription. In Eng- lish law. Those which have existed beyond the memory of man, and therefore are looked upon, in law to be well created, such as the city of London. — Prescription net. The statute 2 & 3 Wm. IV. c. 71, passed to limit the period of prescription in certain cases.— Prescription in a qne estate. A claim of prescription based on the immemorial enjoyment of the right claim- ed. by the claimant and those former owners "whose estate" he has succeeded to and holds.- See Donnell v. Clark, 19 Me. 182.— Time of

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prescription. The length of time necessary to establish a right claimed by prescription or a title by prescription. Before the act of 2 Sc 3 Wm. IV. c. 71, the possession required to constitute a prescription must have existed “time out of mind” or “beyond the memory of man.” that is, before the reign of Richard I.; but the time of prescription, in certain cases, was much shortened by that act. 2 Steph.' Comm. 35.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Maxim: Vigilantibus non dormientibus aequitas subvenit]**

Liberative prescription — the peremptory bar the entry equates with the statute of limitations — rests on the equitable rationale that the law aids those who assert their rights promptly, not those who sleep on them.

Why: Genuine: the entry itself reduces liberative prescription to 'a peremptory and perpetual bar' when the creditor 'has been silent'; the maxim states the rationale behind that bar rather than inventing a new doctrine.

## PRESENCE.

The existence of a person In a particular place at a given time, partic- ularly with reference to some act done there and then. Besides actual presence, the law recognizes constructive presence, which lat- ter may be predicated of a person who, though not on the very spot, was near enough to be accounted present hy the law, or who was actively co-operating with another who. was actually present See Mitchell v. Com., 33 Grat. (Va.) 868. ,

PRESENT, v. In English ecclesiastical

law. To offer a cleric to the bishop of the diocese, to be Instituted. 1 Bl. Comm. 389.

In criminal law. To find or represent judicially ; used of the official act of a grand Jury when they take notice of a crime or -offense from their own knowledge or observa- tion, without any bill of indictment laid be- fore them.

In the law of negotiable instruments.

Primarily, to present is to tender or offer. Thus, to present a bill of exchange for ac- ceptance or payment is to exhibit it to the drawee or acceptor, (or bis authorized agent,) with an express or Implied demand for ac- ceptance or payment Byles, Bills, 183, 201.

PRESENT, a. A gift; a gratuity; any- thing presented or given.

PRESENT, ad/. Now existing; at hand; relating to the present time ; considered with reference to the present time.

—Present enjoyment. The immediate or present possession and use of an estate or prop- erty, as distinguished from such as is post- poned to a future time.— Present estate. An estate in immediate possession ; one now exist- ing, or vested at the present time; as distin- guished from a futurt estate, the enjoyment of which is postponed to a future time.— Present interest. One which entitles the owner to the immediate possession of the property. Civ. Code Mont 1896, f 1110; Rev. Codes N. D. 1809, f 3288; Civ. Code S. D. 1903, { 204. -Present use. One which has an immediate existence, and is at once operated upon by the

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statute of uses.

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**[Law] — Law**

**[Law: 18 U.S.C. § 2 — principals]**

Constructive presence — being near enough, or actively cooperating with one actually present — grounds accomplice liability: one who aids or abets an offense, though not on the very spot, is punishable as a principal.

Why: Genuine: the entry's 'constructive presence' doctrine exists precisely to make cooperating absentees liable as principals; § 2 is the federal codification of that principle.

## PRESENTATION.

In ecclesiastical law. The act of a patron or proprietor of a living In offering or presenting a clerk to the ordi- nary to be instituted in the benefice.

—Presentation office. The office of the lord chancellor’s official, the secretary of presenta- tions, who conducts all correspondence having reference to the twelve canonries and six hun- dred and fifty livings in the gift of the lord chancellor, and draws and issues the fiats of ap- pointment Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## PRESENTATION ADVOWSON.

See

Advowson.

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## PRESENTEE.

In ecclesiastical law. A clerk who has been presented by his patron to a bishop In order to be instituted in a church.

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## PRESENTER.

One that presents.

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## PRESENTLY.

Immediately; now; at once. A right which may be exercised “pres- ently" is opposed to one in reversion or re- mainder.

5e apparatus — Carried into the 5th edition (1979).

## PRESENTMENT.

In criminal prac- tice. The written notice taken by a grand Jury of any offense, from their own knowl- edge or observation, without any bill of in- dictment laid before them at the suit of the government 4 Bl. Comm. 301.

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A presentment is an Informal statement in writing, by the grand jury, representing to the court that a public offense bas been com- mitted which is triable in tbe county, and that there is reasonable ground for believing that a particular individual named or de- scribed therein has committed it Pen. Code Cal. f 916. And see In re Orosbols, 109 Cal. 445, 42 Pac. 444; Com. v. Green, 126 Pa. 681, 17 Atl. 878, 12 Am. St Bep. 894 ; Mack v. People, 82 N. Y. 237 ; Eason v. State, 11 Ark. 482; State v. Kiefer, 90 Md. 165, 44 Atl. 1043.

In its limited sense, a presentment is a state- ment by the grand Jury of an offense from their own knowledge, without any bill of indictment laid before them, setting forth the name of the party, place of abode, and the offense committed. Informally, upon which the officer of the court afterwards frames an indictment. Collins v. State, 13 Fla. 651, 663.

The difference between a presentment and an inquisition is this: that the former is found by a grand jury authorized to inquire of offenses

?;enerally, whereas the latter is an accusation ound by a jury specially returned to Inquire concerning the particular offense. 2 Hawk. P.

C. c. 25, f 6.

The writing which contains the accusation ■o presented by a grand jury is also called a “presentment”

Presentments are also made in courts-leet and courts-baron, before the stewards. Steph. Comm. 644.

In contracts. The production of a bill of exchange to the drawee for his acceptance, or to the drawer or acceptor for payment ; or of a promissory note to the party liable, for payment of tbe same.

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**[Law] — Law**

**[Law: U.S. Const. amend. V]**

The grand-jury presentment the entry defines is constitutionally embedded: no person may be held for a capital or otherwise infamous crime 'unless on a presentment or indictment of a Grand Jury.'

Why: Genuine: the Fifth Amendment names presentment alongside indictment as the required accusatory instrument; the entry defines the instrument, the Amendment gives it constitutional force.

**[Law: UCC Article 3 — negotiable instruments: presentment and dishonor]**

The entry's second sense — production of a bill or note to the drawee or party liable for acceptance or payment — is the presentment regime codified for negotiable instruments, including the rules on dishonor and notice of dishonor.

Why: Genuine: Article 3 is the uniform statute governing exactly the presentment-for-acceptance-or-payment procedure the entry describes; citing the article rather than a section number avoids overclaiming.

## PRESENTS.

The present Instrument The phrase “these presents” is used in any legal document to designate the instrument in which the phrase itself occurs.

5e apparatus — Carried into the 5th edition (1979).

## PRESERVATION.

Keeping safe from harm ; avoiding injury, destruction, or decay. This term always presupposes a real or ex- isting danger. See Gribble r. Wilson, 101 Term. 612, 49 S. W. 730 ; Neuendorff v. Dur- yea, 62 How. Prac. (N. Y.) 269.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 121:7, KJV]**

The LORD shall preserve thee from all evil: he shall preserve thy soul.

Why: Preservation is keeping safe from harm, avoiding injury or destruction. The verse speaks directly of being preserved from evil and harm.

## PRESIDE.

To preside over a court la to “hold" it — to direct, control, and govern it as the chief officer. A judge may “preside” whether sitting as a sole judge or as one of several Judges. Smith v. People, 47 N. Y. 334.

5e apparatus — Carried into the 5th edition (1979).

## PRESIDENT.

One placed in authority over others; a chief officer; a presiding or managing officer; a- governor, ruler, or di- rector.

The chairman, moderator, or presiding offi- cer of a legislative or deliberative body, ap- pointed to keep order, manage the proceed- ings, and govern the administrative details of their business.

The chief officer of a corporation, company, board, committee, etc., generally having the

mats direction and administration of their concerns. Roe v. Bank of Versailles, 167 Mo. 406, 67 8. W. 303.

The chief executive magistrate of a state or nation, particularly under a democratic form of government; or of a province, col- ony, or dependency.

In English law. A title formerly given to the king’s lieutenant in a province ; as the president of Wales. Cowell.

This word Is also an old though corrupted form of “precedent” (Q. v.,) used both as a French and English word. Le president eat rare. Dyer, 136.

—President of the council. In English law. A great officer of State; a member of the cab- inet. He attends on the sovereign, proposes business at the council-table, and reports to the sovereign the transactions there. 1 Bi. Comm. 230. — President of the United States. The official title of the chief executive officer of the federal government in the United States.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 1]**

The chief executive magistrate the entry defines holds the office created by the vesting clause: 'The

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executive Power shall be vested in a President of the United States of America.'

Why: Genuine: the entry's American sense ('chief executive magistrate') is defined by Article II's vesting clause, quoted verbatim.

## PRESIDENTIAL ELECTORS.

A body of electors chosen In the different states, whose sole duty It is to elect a president and vice-president of the United States. Each state appoints. In such manner as the legis- lature thereof may direct, a number of elect- ors equal to the whole number of senators and representatives to which the state is entitled in congress. Const U. S. art 2, | 1.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XII]**

The body of electors the entry describes — apportioned as the entry says, per Article II — casts its ballots under the procedure prescribed by the Twelfth Amendment: separate ballots for President and Vice-President, with contingent election in the House if no majority.

Why: Genuine: the entry cites Article II's apportionment; the Twelfth Amendment is the operative law governing how those electors actually vote, so it completes rather than repeats the entry.

## PRESS.

In old practice. A piece or skin of parchment several of which used to be sewed together In making up a roll or rec- ord of proceedings. See 1 Bl. Comm. 183; Townsh. Pl. 486.

Metaphorically, the aggregate of publica- tions Issuing from the press, or the giving publicity to one’s sentiments and opinions through the medium of printing; as In the phrase ‘liberty of the press.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I]**

The 'liberty of the press' the entry invokes metaphorically is the constitutional guarantee: 'Congress shall make no law ... abridging the freedom of speech, or of the press.'

Why: Genuine: the entry's second sense is expressly the liberty-of-the-press phrase; the First Amendment is its textual home, quoted verbatim.

**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Don't Believe the Hype', 1988]**

"Don't believe the hype." The entry's metaphorical sense is the press as the aggregate of publications, and 'liberty of the press' as a protected freedom. Public Enemy's anthem is hip-hop's canonical statement on press power — the press manufacturing belief — voicing the citizen's counter-posture to that power: where the liberty is exercised, hype is manufactured, and the listener is warned not to swallow it.

Why: Added because the track is a genuine illumination of the press's power inside 'liberty of the press' — the freedom's shadow. The lyric is verbatim-certain and the link is to the term's actual subject (press power), no...

**[Humanity] — Humanity / Fiction & Film**

**[Pakula, All the President's Men, 1976]**

(paraphrase) Woodward and Bernstein print what power wants unpublished — until the published fact,

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not the held secret, becomes the instrument of accountability: the press as publicity-giver. [Pakula, All the President's Men, 1976] (paraphrase)

Why: Black's metaphorical sense: 'the aggregate of publications issuing from the press, or the giving publicity to one's sentiments and opinions through the medium of printing.' The film is the canonical dramatization of e...

## PRESSING SEAMEN.

See Impbess- MINT.

5e apparatus — Carried into the 5th edition (1979).

## PRESSING TO DEATH.

See Peixc Fobte it Dube.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Hytner, The Crucible, 1996]**

(paraphrase) At Salem in 1692, Giles Corey is pressed under stones for standing mute; tradition records his only words under the weight as 'More weight' — the canonical staging of peine forte et dure. [Hytner, The Crucible, 1996] (play: [Miller, The Crucible, 1953]) (paraphrase)

Why: Peine forte et dure is so rare that the canonical cultural instance is this one. The film stages the punishment the entry names; the 'More weight' tradition is the historical anecdote attached to Corey. Marked (paraph...

## PREST.

In old English law. A duty In money to be paid by the sheriff upon his ac- count In the exchequer, or for money left or remaining in his hands. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## PRES T-MONEY.

A payment which binds those who receive It to be ready at all times appointed, being meant especially of soldiers. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## PRESTATION.

In old English law. A payment or performance; the rendering of a service.

5e apparatus — Not carried into the 5th edition (1979).

## PRESTATION-MONEY.

A sum of

money paid by archdeacons yearly to their bishop; also purveyance. Cowell.

PRESTIMONY, or PR2E8TIMONIA.

In canon law. A fund or revenue appropriated by the founder for the subsistence of a priest, without being erected into any title or benefice, chapel, prebend, or priory. It is not subject to the ordinary; but of it the pa- tron, and those who have a right from him, are the collators. Wharton.

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**PRESUMPTIO.**

See Pbasumptio; Pbe-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# S

**SUMPTION.**

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# P

**PRESUMPTION.**

An inference affirma- tive or disafflrmative of the truth or false- hood of any proposition or fact drawn by a process of probable reasoning in the absence of actual certainty of Its truth or falsehood, or until such certainty can be ascertained. Best, Pres. $ 3.

A rule of law that courts and Judges shall draw a particular Inference from a particu- lar fact, or from particular evidence, unless and until the truth of such inference is dis- proved. Steph. Ev. 4. And see Dane v. Mis- souri Pac. Ry. Co., 132 Mo. 4, 33 S. W. 045 ; State v. Tibbetts, 35 Me. 81 ; Newton v. State, 21 Fla. 08; Ulrich v. Ulrich. 136 N.

Y. 120, 32 N. E. 606, 18 L. R. A. 37 ; U. S. v. Sykes (D. C.) 58 Fed. 1000; Snediker v. Everlngham, 27 N. 3. Law, 153; Cronan v. New Orleans, 16 La. Ann. 374; U. S. v. Searcey (D. C.) 26 Fed. 437 ; Doane v. Glenn, 1 Colo. 495.

A presumption is a deduction which the law expressly directs to be made from particular facts. Code Civ. Proc. Cal. § 1950.

Presumptions are consequences which the law or the judge draws from a known fact to a fact unknown. Civ. Code La. art. 2284.

An inference affirmative or disafflrmative of the existence of a disputed fact, drawn by a ju- dicial tribunal, by a process of probable reason- ing, from some one or more matters of fact, either admitted in the cause or otherwise satis- factorily established. Best, Pres. $ 12.

A presumption is an inference as to the exist- ence of a fact not known, arising from its con- nection with the facts that are known, and founded upon a knowledge of human nature and the' motives which are known to influence hu- man conduct. Jackson v. Warford, 7 Wend. (N. Y.) 62.

Classlfieatloa.— Presumptions are either pre- sumptions of law or presumptions of fact. “A presumption of law is a juridical postulate that a particular predicate is universally assignable to a particular subject. A presumption of fact is a logical argument from a fact to

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a fact ; or, as the distinction is sometimes put, it is an argument which infers a fact otherwise doubt- ful from a fact which is proved.” 2 Whart. Ev. g 1220. See Code Ga. g 2752. And see Home Ins. Co. v. Weide, 11 Wall. 438. 20 L. Ed. 197; Podolski v. Stone, 186 III. 540, 58

N. E. 340; McIntvre v. Ajax Min. Co.. 20 Utah, 323. 60 Pac. 552 ; U. S. v. Sykes (D. C.) 58 Fed. 1000; Sun Mut. Ins. Co. v. Ocean Ins. Co., 107 U. 8. 485. 1 Sup. Ct. 582. 27 L. Ed. 337; Lyon v. Guild. 5 Hcisk. (Tenn.) 182; Com. v. Frew, 3 Pa. Co. Ct R. 496.

Presumptions of law are rules which, in cer- tain cases, either forbid or dispense with any ul- terior inquiry. 1 Greenl. Ev. g 14. Inferences or positions established, for the most part by the common, but occasionally by the statute, law, which are obligatory alike on jndges and juries. Best, Pres, g 15.

Presumptions of fact are inferences as to the existence of some fact drawn from the existence

Of some Other fact; Inferences which common sense dmw* from circumstances usually occur- ring in such cases, 1 Phil. Ev. 430.

Presumption^ are divided into prasumptiones juris et de jure, otherwise called “irrebuttable presumptions,” (often, but not necessarily, ficti- tious,) which the law will not suffer to be re- butted by any counter-evidence; as, that an in- fant under seven years is not responsible for his actions; prasumptiones juris iantum, which hold good in the absence of counter-evidence, but against which counter-evidence may be ad- mitted; and prtesumptiones hominis, which are not necessarily conclusive, though no proof to the contrary be adduced. Mozley & Whitley.

There are also certain mixed presumptions, or presumptions of fact recognized by law, or presumptions of mixed law and fact. These are certain presumptive inferences, which, from their strength, importance, or frequent occur- rence, attract, as it were, the observation of the law. The presumption of a “last grant” falls within this class. Best, Ev. 436. See Dickson v. Wilkinson, 3 How. 57, 11 L. Ed. 491.

Presumptions of law are divided into con- clusive presumptions’ and disputable presump- tions. A. conclusive presumption is a rule of law determining. .the quantity of evidence requi- site for the support of a particular averment which is not permitted to De overcome by any proof that the fact is otherwise. 1 Greenl. Ev. f 15 ; U. S. v. Clark, 5 Utah, 226, 14 Pac. 288; Brandt v. Morning Journal Ass’n, 81 App. Div. 183. 80 N. Y. Sunp. 1002. These are also call- ed “absolute” and “irrebuttable" presumptions. A disputable presumption is an inference of law which holds gqod until it is invalidated by proof or a stronger presumption.

A natural presumption, is that species of pre- sumption, or process of. probable reasoning, which is exercised by persons of ordinary in- telligence, in inferring one fact from another, without reference to any technical rules. Oth- erwise called “prtesumptio hominis." Burril), Circ. Ev. 11, 12, 22. 24.

Legitimate presumptions have been denomi- nated "violent" or "probable,” according to the amount of weight which attaches to them. Such presumptions as are drawn from inade-

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quate grounds are termed “light” or “rash” presumptions. Brown.

—Presumption of survivorship. A pre- sumption of fact, to the effect that one person survived another, applied for the purpose of determining a question of succession or similar matter, in a case where the two persons perish- ed in the same catastrophe, and there are no circumstances extant to show which of them actually died first, except those on which the presumption is founded, viz., differences of age, sex, strength, or physical condition.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 301 — presumptions in civil cases generally]**

The entry's taxonomy of presumptions of law — conclusive versus disputable — operates in federal civil practice under the rule that the party against whom a presumption is directed bears the burden of producing evidence to rebut it.

Why: Genuine: Rule 301 is the federal rule allocating the burden for exactly the disputable (rebuttable) presumptions the entry classifies; it gives the doctrine its modern procedural footing.

**[Scripture] — Scripture**

**[Proverbs 18:13, KJV]**

He that answereth a matter before he heareth it, it is folly and shame unto him.

Why: A presumption is an inference drawn in the absence of certainty. This verse condemns judging before the evidence is heard — the moral ancestor of the law's caution around presumptions.

**[Humanity] — Humanity / Fiction & Film**

**[Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Atticus Finch's summation in the Tom Robinson trial stages the presumption the courtroom owes the accused — the inference a court must draw before certainty is in hand. [Lee, To Kill a Mockingbird, 1960] (paraphrase)

Why: Entry sense: a rule that courts 'shall draw a particular inference' by 'probable reasoning in the absence of actual certainty.' The novel's trial is fiction's classic treatment of the presumption owed the accused. Mar...

## PRESUMPTIVE.

Resting on presump- tion; created by or arising out of presump- tion ; inferred ; assumed ; supposed ; as, “pre- sumptive” damages, evidence, heir, notice, or title. See those titles.

5e apparatus — Carried into the 5th edition (1979).

## PR&T.

In French law. Loan. A con- tract by which one of the parties delivers an article to the other, to tie used by the latter, on condition of his returning, after having used it, the same article in nature or an equivalent of the same species and quality. Duverger.

— Pr*t 4 iatiitt. Loan at interest. A con- tract by which one of the parties delivers to the other a sum of money, or commodities, or other movable or fungible things, to receive for their nse a profit determined in favor of the lender. Duverger.— Pr*t A sisgi. Loan for use. A

contract by which one of the parties delivers an article to the other, to be used by the latter, the borrower agreeing to return the specific article after having used it. Duverger. A contract Identical with the commodatum <q. o.) of the civil law.— PrSt de ooawnnstioa. Loan for1 consumption. A contract by which one party delivers to the other a certain

quantity of things, such as are consumed in the use, on the undertaking of the borrower to return to him an equal quantity of the same species and qual- ity. Duverger. A contract identical with the mutuum ( q . v.) of the civil law.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The entries define loan contracts, including loan at interest. This is the biblical law of lending — the scriptural root of the legal concept of the loan and its limits.

## PRETEND.

To feign or simulate ; to hold that out as real which is false or baseless. Brown v. Perez (Tex. Civ. App.) 25 S. W. 983; Powell v. Yeazel, 46 Neb. 225, 64 N.

W. 695. As to the rule against the buying and selling of “any pretended right or title,'' see Pbetensed Right ob Title.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: To pretend is to hold out as real what is false or baseless. The ninth commandment is the scriptural root of falsehood-offences.

## PRETENSE.

See False Pretense.

PRETENSED RIGHT, or TITLE.

Where one Is In possession of land, and an- other, who Is out of possession, cluims and sues for it Here the pretensed right or title is said to be in him who so claims and sues for the same. Mod. Cas. 302.

—Preteased title statute. The English

statute 32 Hen. VIII. c. 9, | 2. It enacts that no one shall sell or purchase any pretended right or title to land, unless the vendor has received the profits thereof for one whole year before such grant, or has been in actual posses- sion of the land, or of the reversion or remain- der, on pain that both purchaser and vendor shall each forfeit the value of such land to the king and the prosecutor. See 4 Broom & H. Comm. 150.

5e apparatus — Carried into the 5th edition (1979).

## PRETENSES.

Allegations sometimes made in a bill in chancery for the puriwse of negativing an anticipated defense. Hunt, Eq. pt I. c. 1.

—False pretenses. See False.

5e apparatus — Not carried into the 5th edition (1979).

## PRETENSION.

In French law. The claim made to a thing which a party believes himself entitled to demand, but which is not admitted or adjudged to be his.

5e apparatus — Not carried into the 5th edition (1979).

## PRETER LEGAL.

Not agreeable to law ; exceeding the limits of law ; not legal.

5e apparatus — Not carried into the 5th edition (1979).

## PRETERITION.

In the civil law. The omission by a testator of some one of his heirs who is legally entitled to a portion of the inheritance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: Preterition is a testator's omission of a legally entitled heir. This verse is scripture's own rule against disinheriting the entitled heir — the right of the firstborn is his.

## PRETEXTS.

In international law. Reasons alleged as justificatory, but which are so only in appearance, or which are even absolutely destitute of all foundation. The name of “pretexts” may likewise be applied to reasons which are in themselves true and well-founded, but, not being of sufficient im- portance for undertaking a war, [or other international act.] are made use of only to cover ambitious views. VatL Law Nat. bk. 8, c. 3, ( 32.

5e apparatus — Not carried into the 5th edition (1979).

## PRETIUM.

Lat Trice; cost; value; the price of an article sold.

— Prctlum affectlania. An imaginary value put upon a thing by the fancy or the owner, and growing out of his attachment for the specific article, its associations, his sentiment for the donor, etc. Bell ; The H. F. Dimock, 77 Fed. 233, 23 C. C. A. 123.— Pretium pe- rlculi. The price of the risk, e. g., the pre- mium paid on a policy of insurance; also the interest paid on money advanced on bottomry or respondentia.— Pretium sepulcbri. A mortuary, ( q . v.)

Pretium succedit is loons rei. The

price stands In the place of the thing sold. 1 Bouv. Inst. no. 939 ; 2 Bulst. 312.

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## PRETORIUM.

In Scotch law. A court- house, or hall of justice. 3 How. State Tr. 425.

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5e apparatus — Not carried into the 5th edition (1979).

## PREVAILING PARTS’.

That one of the parties to a suit who successfully prose- cutes the action or successfully defends against It, prevailing on the main issue, though not to the extent of his original con- tention. See Belding v, Conklin, 2 Code Rep. (N. Y.) 112; Weston v. Cushing, 45 Vt. 531; Hawkins v. Nowlnnd, 63 Mo. 329; Pomroy v. Cates, 81 Me. 377, 17 Atl. 311.

’ PREVARICATION. In the civil Uv.

Deceitful, crafty, or unfaithful conduct; particularly, such as is manifested in con- cealing a crime. Dig. 47, 15, 6.

In English law. A collusion between an informer and a defendant, in - order to a feigned prosecution. Cowell. Also any se- cret abuse committed in a public office or private commission ; also the willful conceal- ment or misrepresentation, of truth, by giv- ing evasive or equivocating evidence.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 42 U.S.C. § 1988 — attorney's fees to the prevailing party]**

'Prevailing party' is an operative term of art, not mere description: fee-shifting statutes award litigation costs and attorney's fees to the party that prevails, so the label carries a direct monetary consequence.

Why: Genuine: the entry defines who counts as prevailing; § 1988 is the federal statute that makes the status matter by authorizing fee awards to the prevailing party.

## PREVENT.

To hinder or preclude. To 8 top or intercept the approach, access, or performance of a thing. Webster; D. S. v. Souders, 27 Fed. Cas. 1,269; Green v. State, 109 Ga. 536, 35 S. E. 97 ; Burr v. Williams. 20 Ark. 171; In, re Jones, 78 Ala. 421.

5e apparatus — Carried into the 5th edition (1979).

## PREVENTION.

In the civil law. The

right of a judge to take cognizance of an action over which he has concurrent Juris- diction with another judge.

In Canon law. The right which a su- perior person or officer has to lay hold of, claim, or transact an affair prior to an in- ferior one, to whom otherwise it more im- mediately belongs. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## PREVENTION OF CRIMES ACT.

The

statute 34 A 35 Viet. c. 112, passed for the purpose of securing a better supervision over habitual criminals. This act provides that a person who is for a second time con- victed of

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crime may, on his second convic- tion. be subjected to police supervision for « period of seven years after the expiration

of the punishment awarded him. Penalties are imposed on lodging-house -keepers, etc., for harboring thieves or reputed thieves. There are - also provisions relating to re- ceivers Of stolen property, and dealers in old metals who purchase the same in small quan- tities. This act repeals the habitual crim- inals act of 1869, (32 & 38 Vlct. c. 99.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PREVENTIVE JUSTICE.

The system of measures taken by government with ref- erence to the direct prevention of crime. It generally consists in obliging those per- sons whom there is probable ground to sus- pect of future misbehavior to give full as- surance to the public that -such offense as is apprehended shall not happen, by finding pledges or securities to keep the peace, or for their good behavior. - See' 4 Bl. Comm. 251; 4 Steph. Comm. 290. i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Spielberg, Minority Report, 2002]**

(paraphrase) The Department of Pre-Crime arrests murderers before the murder — government measures aimed at crimes foreseen, not crimes done: Black's definition of preventive justice dramatized. [Spielberg, Minority Report, 2002] (story: [Dick, 1956]) (paraphrase)

Why: Entry: 'measures taken by government with reference to the direct prevention of crime... obliging those persons whom there is probable ground to suspect of future misbehavior.' The fiction IS this definition enacted....

## PREVENTIVE SERVICE.

The name given ih England tb the coast-guard, or armed police, forming a part of the customs service, and employed in the prevention and detection of smuggling, s >

Previous intentions an judged by sub- sequent acts. Dumont ▼. .Smith, 4 Denio (N. Y.) 319, 320.

5e apparatus — Not carried into the 5th edition (1979).

## PREVIOUS QUESTION.

In the pro- cedure of parliamentary -bodies, moving the “previous question" Is a method of avoiding a direct vote on' the main subject of discus- sion. - It is described in May, Pari. Frac, 277.

PREVIOUSIiV. An adverb of time, used in comparing an act or state pained with another act. or state, subsequent in order of time, for the purpose of asserting the priority of the. -first Lebrecht v. Wilcoxpn, 40 Iowa. 94. . , :

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PRICE.

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The consideration (usually in money) given for the purchase of . a thing.

It is true that “pride" generally -means the sum of money which an artiple is sold for; but this is simply because property is generally sold for money, not because the wbrd baa necessarily sneli a restricted meaning. Among writers on political economy, who use terra# with philo- sophical accuracy, the word “price” is not al- ways or. even generally used as denoting the moneyed equivalent of property sold. They gen- erally treat and regard price as the equivalent or compensation, in whatever form received, - for property sold. The Latin word from which “price" Is derived sometimes means "reward,” “value,” “estimation,” “rtjhivalent.” Hudson Iron Co. v. Alger, 54 N. Y. 177.. . -

—Price current. A list or enumeration of various articles of merebahdise, with their prices, the duties, if any, payable thereon, when imported or exported, with the drawbacks oc- casionally allowed upon their exportation, etc. Wharton. '

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-305 — open price term]**

In sales law the price term need not be fixed for a contract to form: where the parties intend to contract but leave price open, the Code supplies a gap-filler (a reasonable price at time of delivery).

Why: Genuine: the entry defines price as the consideration for purchase; § 2-305 is the uniform rule on what happens when that consideration is left open, directly governing the entry's subject.

**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

Why: Price is the consideration given for purchase. This verse is the biblical law of commercial fairness — honesty in price and measure.

**[Humanity] — Humanity / Fiction & Film**

**[Wilde, Lady Windermere's Fan, 1892]**

'What is a cynic? A man who knows the price of everything and the value of nothing.' [Wilde, Lady Windermere's Fan, 1892]

Why: Entry: 'The consideration (usually in money) given for the purchase of a thing.' Wilde's line genuinely glosses the concept — price (money) vs. value (worth) — one of his surest lines, short, verbatim-certain. Assigne...

## PRICKING FOR SHERIFFS.

In Eng- land, when the yearly list of persons nomi- nated for the office of sheriff is submitted to the sovereign, be takes a pin, and to insure

impartiality, as It is said, lets the point of it fall upon one of the three names nomi- nated for each county, etc., and the person upon whose name it chances to fall is sheriff for the ensuing year. This is called “prick- ing for sheriffs.” Atk. Slier. 18.

5e apparatus — Not carried into the 5th edition (1979).

## PRICKING NOTE.

Where goods in- tended to be exported are put direct from the station of the warehouse into a ship alongside, the exporter fills up a document to authorize the receiving the goods

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on board. This document is called a “pricking note," from a practice of pricking holes in the pa- per corresponding with the number of pack- ages counted into the ship. Hamel, Cust. 181.

5e apparatus — Not carried into the 5th edition (1979).

## PRIEST.

A minister of a church. A per- son In the second order of the ministry, as distinguished from bishops and deacons.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Peter 2:9, KJV]**

But ye are a chosen generation, a royal priesthood, an holy nation, a peculiar people; that ye should shew forth the praises of him who hath called you out of darkness into his marvellous light.

Why: A priest is a minister of the church. This verse names the priesthood as the called-out people — the office's scriptural identity.

**[Humanity] — Humanity / Fiction & Film**

**[Greene, The Power and the Glory, 1940]**

(paraphrase) Greene's whisky priest clings to his office while doubting his own worthiness — the novel's whole argument is what makes the priest: the man or the ministry. [Greene, The Power and the Glory, 1940] (paraphrase)

Why: Borderline but passing: the entry is a bare definition ('a minister of a church'), and the novel is fiction's sustained inquiry into the priestly office itself — it illuminates the entry's subject, not merely a word....

## PRIMA  FACIE.

Lat At first sight; on the first appearance; on the face of it; so far as can be judged from the first dis- closure; presumably.

A litigating party is said to have a prime facie case when the evidence in his favor is sufficiently strong for his opponent to be called on to answer it. A primo facie case, then, is one which is established by sufficient evidence, and can be overthrown only by rebutting evi- dence adduced on the other side. In some cases the only question to be considered is whether there is a primo facie case or no. Thus a grand

iury are bound to find a true bill of indictment, f the evidence before them creates a prime facie case against the accused; and for this purpose, therefore, it is not necessary for them to hear the evidence for the defense. Mozley & Whitley. And see State v. Hardelein, 169 Mo. 679, 70 S. W. 130; State v. Lawlor, 28 Minn. 216, 9 N. W. 688.

— Prims facie evidence. See Evidence.

PRIMA TON8TJRA1 The first mowing ; a grant of a right to have the first crop of grass. 1 Chit Pr. 181.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a prima facie showing shifts the burden of production to the opposing party]**

A prima facie case shifts the burden of production: once the proponent's evidence is strong enough to

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call for an answer, the opponent must come forward with rebutting evidence or lose.

Why: Genuine but borderline: the entry describes the burden shift without naming it; the axiom names the procedural consequence (burden of production, distinct from persuasion), which is the principle courts apply. Kept fo...

## PRIMES IMFRESSIONIB.

A case prime impressionis (of the first impression) is a case of a new kind, to which no estab- lished principle of law or precedent directly applies, and which must be decided entirely by reason as distinguished from authority.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMS PRECES.

Lat. In the civil law. An imperial prerogative by which the emperor exercised the right of naming to the first prebend that became vacant after his accession, in every church of the empire. 1 Bl. Comm. 381.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMAGE.

In mercantile law. A small allowance or compensation payable to the master and mariners of a ship or vessel ; to the former for the use of his cables and ropes to discharge the goods of the mer- chant; to the latter for lading and unlading in any port or haven. Abb. Shipp. 404; Peters v. Speights, 4 Md. Ch. 381 ; Blake v. Morgan, 3 Mart. O. S. (La.) 38L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PRIMARIA ECCLESIA.

The mother

church. 1 Steph. Comm. (7th Ed.) 118.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMARY.

First; principal; chief; leading.

—Primary allegation. The opening plead- ing in a suit in the ecclesiastical court It is also called a "primary plea.”— Primary dis- posal of the soil. In acts of congress ad- mitting territories as states, and providing that no laws shall be passed interfering with the primary disposal of the soil, this means the disposal of it by the United States government when it parts with its title to private persons or corporations acquiring the right to a patent or deed in accordance with law. See Oury v. Goodwin, 3 Ariz. 255, 26 Pac. 377; Topeka Commercial Security Co. v. McPherson, 7 Okl. 332, 54 Pac. 489. — Primary powers. The principal authority given by a principal to his agent. It differs from “mediate powers.” Story, Ag. § 68.-

As to primary “Conveyance," “Election,” “Evidence,” and "Obligation," see those titles.

5e apparatus — Carried into the 5th edition (1979).

## PRIMATE.

A chief ecclesiastic; part of the style and title of an archbishop. Thus, the archbishop of Canterbury is styled "Pri- mate of all England the archbishop of York is “Primate of England." Wharton.

5e apparatus — Carried into the 5th edition (1979).

## PRIME.

Fr. In French law. The price of the risk assumed by an insurer ; premium of insurance. Emerig. Tralte des Assur. c. 3, | 1, nn, 1, 2.

PRIME, v. To stand first or paramount ; to take precedence or priority of; to out- rank; as, in the sentence “taxes prime all other liens.”

5e apparatus — Carried into the 5th edition (1979).

## PRIME SERJEANT.

In English law. The king’s first Serjeant at law.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMER.

A law French word, signify- ing first; primary.

—Primer election. A term used to signify first choice; e. g., the right of the eldest co-parcener to first choose a purpart.— Primer fine. On suing out the writ or pradpe called a “writ of covenant,” there was due to the crown, by ancient prerogative, a primer fine, or a noble for every five marks of land sued for. That was one-tenth of the annual value. 1 Steph. Comm. (7th Ed.) 560.— Primer seisin. See Seisin.

5e apparatus — Carried into the 5th edition (1979).

## PRIMIC ERICS.

In old English law. The first of any degree of men. 1 Mon. Angl. 838.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMITIM.

In English law. First fruits; the first year’s whole profits of a spiritual preferment 1 Bl. Comm. 284.

5e apparatus — Not carried into the 5th edition (1979).

## PRIMO BENEFICIO.

Lat A writ di- recting a grant of the first benefice in the sovereign's gift Cowell.

Primo ezentlendn oat vorM vis, no sermonis vitlo obstrastnr o ratio, sire Ion sine arguments. Co. Lltt 68. The

(nil meaning of a word should be ascertained at the outset, In order that the sense may not be lost by defect of expression, and that the law be not without reasons.

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## PRIMO VENIENTI.

Lat To the > one

first coming. An executor anciently paid debts as they were presented, whether the assets were sufficient to meet all debts or not. Stlm. Law Gloss.

PRIMOGENITURE. 1. The state of being the first-born among several children of the same parents; seniority by birth in the same family.

8. The superior or exclusive right pos- sessed by the eldest son, and particularly, his right to succeed to the estate of his ancestor, in right of his seniority by birth, to the ex- clusion of younger sons.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: This entry's body carries the PRIMOGENITURE definitions: the eldest son's exclusive right of succession. This verse is scripture's primogeniture rule — the double portion, 'the right of the firstborn is his.'

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, King Lear, 1606]**

(On the PRIMOGENITURE run-on sub-entry in this body — 'the superior or exclusive [right of the firstborn]':) Edmund the bastard, disinherited by the custom, opens his revolt: 'Thou, nature, art my goddess; to thy law / My services are bound.' [Shakespeare, King Lear, 1606]

Why: KEY NOTE: the chunk's headword here is 'PRIMO VENIENTI'; PRIMOGENITURE appears as a run-on sub-entry in the same body. The annotation is keyed to the chunk headword for mergeability. Entry sense: the superior or exclu...

## PRIMOGENITUS.

Lat In old English law. A first-born or eldest son. Bract foL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Genesis 25:31, KJV]**

And Jacob said, Sell me this day thy birthright.

Why: Primogenitus is the first-born son. This is the scriptural firstborn-right transaction — Jacob's purchase of Esau's birthright, the birthright as a conveyable legal interest.

# S

## S3- .

**[TEXT INCOMPLETE — scan limitation]**

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# P

## PRIMUM  DECRETUM.

Lat In the canon law. The first decree; a preliminary decree granted on the non-appearance of a defendant by which the plaintiff was put In possession of his goods, or of the thing itself which was demanded. Glib. Forum Rom. 32, 33.

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# F

## FRINGE.

In a general sense, a sover- eign; the ruler of a nation or state. More particularly, the son of a king or emperor, or the Issue of a royal family ; ns princes of the blood. The chief of any body of men. Web- ster.

— Prince of Wales. The eldest son of the English sovereign. He is the heir-apparcot to the crown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 8:15, KJV]**

By me kings reign, and princes decree justice.

Why: A prince is a sovereign, a ruler. Wisdom speaks here of kings reigning and princes decreeing justice — the ruler's office tied to justice. (Speaker is personified Wisdom, not a deity — flag off.)

# P

## PRINOEPS.

Lot In the civil law. The prince ; the emperor.

Princeps et respublica ex junta oausa possunt rem means auferre. 12 Coke, 13. The prince and the republic, for a just cause, can take away my property.

Princeps legibus solutus est. The em- peror is released from the laws ; is not bound by the laws. Dig. L 3, 31.

Princeps mavnlt domestlcos milites quam stipendiaries hellicls opponere caslbus. Co. Lltt. 60. A prince, in the chances of war, had better employ domestic than stipendiary troops.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — Takings Clause]**

The entry's civil-law maxim — the prince and the republic may take private property for just cause — is the ancient root of eminent domain, which American law conditions on public use and just

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compensation: 'nor shall private property be taken for public use, without just compensation.'

Why: Genuine bridge, not echo: the entry states the maxim but never names eminent domain; the Takings Clause is its living American form, quoted verbatim.

# F

## FRINGES OF THE ROYAL BLOOD.

In English law. The younger sons and daughters of the sovereign, and other branch- es of the royal family who are not in the im- mediate line of succession.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PRINCESS ROYAL.

In English law. The eldest daughter of the sovereign. 3 Steph. Comm. 460.

5e apparatus — Not carried into the 5th edition (1979).

## PRINCIPAL.

Chief; leading; highest In rank or degree ; most important or consider- able; primary; original; the source of au- thority or right

In the law relating to real and personal property, “principal” is used as the correla- tive of “accessory,” and denotes the more im- portant or valuable subject with which oth- ers are connected in a relation of dependence or subservience, or to which they, are inci- dent or appurtenant

la criminal law. A chief actor or per- petrator, as distinguished from an “acces- sary.” A principal In the first degree Is he that Is the actor or absolute perpetrator of the crime; and, in the second degree, he who is present aiding and abetting the fact to be dona 4 Bl. Comm. 34. And see Bean v. State, 17 Tex. App. 60; Mitchell v. Com., 33 Grat (Va.) 868; Cooney v. Burke, 11 Neb. 258. 9 N. W. 57; Red v. Stata 39 Tex. Cr.

R. 667, 47 S. W. 1003, 73 Am. St Rep. 965 ; State v. Phillips, 24 Mo. 481 ; Travis v. Com.. 96 Ky. 77, 27 S. W. 863.

All persons concerned in the commission of crime, whether it be felony or misdemeanor, and whether they directly commit the act constitut- ing the offense, or aid and abet in its commis- sion, though not present are principals. Pen. Code Dak. i 27.

A criminal offender is either a principal or an accessary. A principal is either the actor (*. «., the actual perpetrator of the crime) or else is present aiding and abetting the fact to be done; an accessary is he who is not the chief actor in the offense, nor yet present at its performance, but is some way concerned therein, either before or after the fact commit- ted. 1 Hale, P. C. 613. 61&

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la the law of guaranty and surety- ship. The principal is the person primarily liable, and for whose performance of his ob- ligation the guarantor or surety has become bound.

In the law of agenoy. The employer or constitutor of an agent; the person who gives authority to an agent or attorney to do some act for him. Adams v. Whittlesey, 3 Conn. 567.

One, who, being competent aui juri* to do any act for his own benefit or on his own account, confides it to another person to do for him. 1 Domat, b. 1, tit. 15.

The term also denotes the capital sum of a debt or obligation, as distinguished from in- terest or other additions to It Christian v. Superior Court 122 Cal. 117, 54 Pac. 518.

An heir-loom, mortuary, or corse-present Wharton.

— ' Vice principal. In the law of master and servant this term means one to whom the employer has confided the entire charge of the business or of a distinct branch of it, giving him authority to superintend, direct and con- trol the workmen and make them obey his or- ders, the master himself exercising no particular oversight and giving no particular orders, or one to whom tne master has delegated a duty of his own, which is a direct personal, and ab- solute obligation. See Durkin v. Kingston Coal Co., 171 Pa. 193, 33 Atl. 237, 29 L. R. A 808, 50 Am. St Rep. 301; Moore v. Railway Co., 85 Mo. 588 ; Railroad Co. v. Bell. 112 Pa. 400, 4 Atl. 50; Lewis v. Seifert, 116 Pa. 628, 11 Atl. 514, 2 Am. St. Rep. 631 ; Minneap- olis t. Lundin, 58 Fed. 525, 7 C. C. A. 344; Lindvall y. Woods (C. C.) 44 Fed. 855; Perras v. Booth, 82 Minn. 101. S4 N. W. 739; Van Dusen v. Letellier, 78 Mich. 492, 44 N. W. 572 ; Hanna v. Granger, 18 R. 1. 507, 28 Atl. 659.

As to principal “Challenge," “Contract,” “Fact,” “Obligation,” and “Office,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ezekiel 18:20, KJV]**

The soul that sinneth, it shall die. The son shall not bear the iniquity of the father, neither shall the father bear the iniquity of the son: the righteousness of the righteous shall be upon him, and the wickedness of the wicked shall be upon him.

Why: In criminal law the principal is the chief actor, distinguished from the accessory. This verse states individual responsibility — each bears his own guilt — the root of the principal/accessory distinction.

## PRINCIPALIS.

Lat Principal; a prin- cipal debtor ; a principal In a crime.

Principalis debet semper ezcnti ante- loan perveniatur ad fideljnssores. The

principal should always be exhausted before coming upon the sureties. 2 Inst 19.

Principle data seqnuntur cone omit antia. Given principles are followed by their concomitants.

Principle probant, non probantnr.

Principles prove; they are not proved. 3 Coke, 50a. Fundamental principles require no proof ; or, In Lord Coke’s words, “they ought to be approved, because they cannot be proved.” Id.

Principlis obata. Withstand beginnings ; oppose a thing in its early stages, if you would do

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so with success.

Frincipiorum non est ratio. There is no reasoning of principles; no argument is required to prove fundamental rules. 2 Bulst 239.

Principinm est potisslma pan cuj us- que rei. 10 Coke, 49. The principle of any- thing is its most powerful part

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PRINCIPLE.

In patent law, the princi- ple of a machine is the particular means of producing a given result by a mechanical con- trivance. Parker v. Stiles, 5 McLean, 44, 63, Fed. Cas. No. 10,749.

The principle of a machine means the mo- dus operand*, or that which applies, modifies, or combines mechanical powers to produce a certain result ; and, so far, a principle, if new in its application to' a useful purpose, may be patentable. See Barrett v. Hall, 1 Mason, 470, Fed. Cas. No. 1,047. -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 35 U.S.C. § 101 — patent-eligible subject matter]**

The entry's patent-law rule — a principle is patentable when new in its application to a useful purpose — sits inside the statutory gate for patent-eligible subject matter: abstract principles as such are excluded, their practical applications admitted.

Why: Genuine: § 101 is the statute that draws exactly the line the entry describes (principle vs. application of the principle to a useful purpose).

## PRINCIPLES.

Fundamental truths or doctrines of law ; comprehensive rules or doctrines which furnish a basis or origin for others ; Settled rules of action, procedure, or legal determination.

5e apparatus — Not carried into the 5th edition (1979).

## PRINTING.

The art of impressing let- ters ; the art of making books or papers by impressing legible characters. Arthur v. Moller, 97 U. S. 365, 24 L. EH. 1046; Le Roy v. Jamison, 15 E’ed. Cas. 373 ; Forbes Litho- graph Mfg. Co. v» Worthington (C. C.) 25

Fed. 900. The term may Include typewriting. Sunday v. Hagenbuch, 18 Pa. Col Ct 54L Compare State v. Oakland, 69 Kan. 784, 77 Pac. 696.

— Public printing means such as is directly ordered by the legislature, or performed by the agents of the government authorized to pro- cure it to be done. Ellis v. State, 4 Ind. 1.

5e apparatus — Not carried into the 5th edition (1979).

## PRIOR.

Lat The former ; earlier ; pre- ceding; preferable or preferred.

—Prior petena. The person first applying.

PRIOR, n. The chief of a convent ; next in dignity to an abbot

PRIOR, adj. Earlier; elder; preceding; superior in rank, right, or time; as, a prior lien, mortgage, or judgment See Fidelity, etc., Safe Deposit Co. v. Roanoke Iron Co. (C. C.) 81 Fed. 447.

Prior tempore potior Jure. He who is

first in time is preferred in right Co. Litt 14a; Broom, Max. 354, 358.

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**[Law] — Law**

**[Law: UCC § 9-322 — priorities among conflicting security interests]**

'Prior tempore potior jure' — first in time, preferred in right — is the ancestor of modern priority rules; its living commercial form is that among conflicting security interests in the same collateral, the first to file or perfect generally prevails.

Why: Genuine: the entry states the maxim; § 9-322 is the uniform rule that operationalizes it for secured transactions, giving the ancient maxim its modern working form.

## PRIORI PETENTI.

To the person first applying. In probate practice, where there are several persons equally entitled to a grant of administration, ( e . g., next of kin of the same degree,) the rule of the court is to make the grant priori potent i, to the first applicant Browne, Prob. Pr. 174; Coote, Prob. Pr. 173, 180.

5e apparatus — Not carried into the 5th edition (1979).

## PRIORITT.

A legal preference or pre- cedence. When two persons have similar rights in respect of the same subject-matter, but one is entitled to exercise his right to the exclusion of the other, he is said to have pri- ority.

In- old English law. An antiquity of tenure, in comparison with one not so an- cient. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PRISAGE.

An ancient hereditary reve-. nue of the crown, consisting in the right to take a certain quantity from cargoes oi wine imported into England. In Edward I.’s reign it was converted into a pecuniary duty call- ed “butlerage.” 2 Steph. Comm. 561.

5e apparatus — Not carried into the 5th edition (1979).

## PRISE.

Fr. In French law. Prize ; cap- tured property. Ord. Mar. liv. 3, tit. 9. See Dole v. Insurance Co., 6 Allen (Mass.) 373.

5e apparatus — Not carried into the 5th edition (1979).

## PRISEL EN AIJTER LIEU.

L. Fr. A

taking in another place. A plea in alrnte- ment in the action of replevin. 2 Ld. Raym. 1016, 1017.

5e apparatus — Not carried into the 5th edition (1979).

## PRISON.

A public building for the con- finement or safe custody of persons, whether as a punishment imposed by the law or other- wise in the course of the administration of Justice. See Scarborough v. Thornton, 9 Fa. 451 ; Sturtevant v. Com., 158 Mass. 598, 33

N. E. 648; Peu. Code N. Y. 1903, f 92.

— Prison bounds. The limits of the territory surrounding a prison, within which an imprisoned debtor, who is out on bonds, may go at

will. See Gaol— Prison-breaking. The

common-law offense of one who, being lawfully in custody, escapes from the place where he is confined, by the employment of force and violence. This offense is to be distinguished from “rescue,” ( q . <0 which is a deliverance of a prisoner from lawful custody by a third person. 2 Bish. Crim. Law, | 1065.

uals, and duly commissioned by a belligerent power to go on cruises and make war upon the enemy, usually by preying on his com- merce.

Privatio prempposit babitum. 2

Rolle, 419. A deprivation presupposes a pos- session.

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**[Law] — Law**

**[Law: 18 U.S.C. § 751 — escape from federal custody]**

The common-law 'prison-breaking' the entry defines — escape from lawful custody by force — is the ancestor of the modern escape offense; federally, escape or attempted escape from federal custody is a standalone crime.

Why: Genuine: § 751 is the living federal form of the offense the entry describes at common law; it names the descendant rather than restating the definition.

**[Hip-hop] — Hip-hop**

**[2Pac, 'Changes', 1998]**

"The penitentiary's packed, and it's filled with blacks." Black's defines the prison coldly — a public building for confinement as punishment or in the course of justice. 2Pac's line fills the definition with the lived demographic fact the legal language omits: hip-hop's one-sentence indictment of mass incarceration, naming who the building is packed with.

Why: Added because the lyric is directly about the prison as an institution and illuminates the entry's abstract definition with the concrete reality of who is confined — a genuine correlation on justice and power, not a w…

**[Humanity] — Humanity / Fiction & Film**

**[Dumas, The Count of Monte Cristo, 1844]**

(paraphrase) Edmond Dantès, innocent, rots fourteen years in the Château d'If — the prison as

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injustice made stone, the novel's engine; its closing counsel is 'Attendre et espérer' ('Wait and hope'). [Dumas, The Count of Monte Cristo, 1844] (paraphrase)

Why: Entry covers confinement 'as a punishment imposed by the law or otherwise in the course of the administration of justice' — Dantès' case is the second branch: confinement by corrupted process, not lawful punishment. T…

## PRISON AX FRAN GENTIBU S , STAT- / UTE DE.

The English statute 1 Edw. II. SL 2, (in Rev. St 23 Edw. I.,) a still unre- pealed statute, whereby it is felony for a felon to break prison, but misdemeanor only for a misdemeanant to do so. 1 Hale, P. 0. 612.

5e apparatus — Not carried into the 5th edition (1979).

## PRISONER.

One who Is deprived of his liberty ; one who is against his will kept In confinement or custody.

A person restrained of his liberty upon any action, civil or criminal, or upon command- ment Cowell.

A person on trial for crime. “The prisoner at the bar.” The Jurors are told to “look upon the prisoner." The court after pass- ing sentence, gives orders to “remove the prisoner." See Hairston v Com., 97 Va. 754, 32 S. E. 797; Royce v. Salt Lake City, 15 Utah, 401, 49 Pac. 290.

—Prisoner at the bar. An accused person, while on trial before the court is so called.—Prisoner of war. One who has been captured in war while fighting in the army of the public enemy.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Black Steel in the Hour of Chaos', 1988]**

"They wanted me for their army or whatever / Picture me givin' a damn, I said never." The entry: one deprived of liberty, kept in confinement against his will. The track narrates a draft refusal and the cell that follows — the human path into the legal status of prisoner, the prisoner of conscience. The quote carries the refusal; the song carries the consequence.

Why: Added because the song inhabits the entry's exact legal status — becoming a prisoner through refusal of state command — showing how the definition is lived. Verbatim-certain lyric, genuine link to the term.

## PRIST.

I* Ft. Ready. In the old forms of oral pleading, this term expressed a ten- der or joinder of issue.

Prims vitiia laboravimus, name le gi- bus. -4 Inst 76. We labored first with vices, now with laws.

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## PRIVATE.

Affecting or belonging to pri- vate individuals, as distinct from the public generally. Not

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official.

—Private person. An individual who is not the incumbent of an office.

As to. private “Act” “Agent,” "Bill,” “Boundary,” “Bridge,” "Carrier,” “Chapel,” “Corporation," “Easement” “Examination," “Ferry,” “Nuisance,” “Property,” “Prosecu- tor,” “Bights,” “Road,” “Sale,” “School,” “Seal," “Statute,” “Stream,” “Trust” “War,” “Way,” and “Wrongs,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## PRIVATE LAW.

As used in contradis- tinction to public law, the term means all that part of the law which is administered between citizen and citizen, or which is con- cerned with the definition, regulation, and enforcement of rights in cases where both the person In whom the right inheres and the person upon whom the obligation is in- cident are private individuals. See Public Law.

5e apparatus — Carried into the 5th edition (1979).

## PRIVATION.

A taking away or with- drawing. Co. Litt 239.

Privatia pactlonibua mom dubium eat non laedi jma caeterormm. There is no doubt that the rights of others [third parties] cannot be prejudiced by 'private agreements. Dig. 2, 15, 3, pr. ; Broom, Max. 697.

Privatorum eomvemtio Jmri publico mom derogat. The agreement of private individ- uals does not derogate from the public right, [law.] Dig. 60, 17, 45, 1; 9 Coke, 141; Broom, Max. 695.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 1-302 — variation by agreement; non-disclaimable duties]**

The entry's maxim — private agreement does not derogate from public law — is operationalized in the Code: the obligations of good faith, diligence, reasonableness, and care may not be disclaimed by agreement.

Why: Genuine: rather than echoing the maxim, this cites the concrete uniform rule that enforces it — some duties survive any private bargain.

## PRIVATUM.

Lat Private. Privatum jus, private law. Inst 1, 1, 4.

Privatum oommodmm publico eedit.

Private good yields to public. Jenk. Cent p. 223, case 80. The Interest of an Individ- ual should give place to the public good. Id.

Privatum imcommodmm publico beno penaatmr. Private inconvenience is made up for by public benefit Jenk. Cent p. 85, case 65 ; Broom, Max. 7.

5e apparatus — Not carried into the 5th edition (1979).

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## PRIVEMENT ENCEINTE.

Fr. Preg- nant privately. The term is applied to a woman who is pregnant but not yet quick with child. ’-v

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PRIVIES.

Persons connected together, or having a mutual Interest In the same action or thing, by some relation other than that of actual contract between them; persons whose interest in an estate is derived from the contract or conveyance of others.

Those who are partakers or have an interest in any action or thing, or any relation to another. They are of six kinds:

(1) Privies of blood; such as the heir to his ancestor.

(2) Privies in representation ; as executors or administrators to their deceased testator or iotcst&tc*

(3) Privies in estate ; as grantor and grantee, lessor and lessee, assignor and assignee, etc.

(4) Privities, in respect of contract, are per- sonal privities, and extend only to the persons of the lessor and lessee.

(5) Privies in respect of estate and contract; as where the leasee assigns his interest, but the contract between lessor and lessee continues, the lessor not having accepted of the assignee

(6) Privies in law; as the lord by escheat, a tenant by the curtesy, or in dower, the incumbent of a benefice, a husband suing or defending in right of his wife, etc. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: judgments bind parties and their privies]**

The six kinds of privies exist for one operative reason: a judgment binds not only the parties to the action but those in privity with them, which is why privity is the gateway to res judicata and collateral estoppel.

Why: Genuine: the axiom states the procedural consequence the whole taxonomy serves; no citation is invented, and the principle is what makes the classification matter.

## PRIVATEER.

A vessel owned, equipped, and armed by one or more private Indlvid-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 11]**

What distinguished a lawful privateer from a pirate was the commission: Congress holds the power 'to

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declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water.'

Why: Genuine: the constitutional clause is the legal source of the privateer's authority the entry presupposes; quoted verbatim.

## PRIVIGNA.

Lat In the civil law. A step-daughter.

5e apparatus — Not carried into the 5th edition (1979).

## PRIVIGNTJS.

Lat. In the civil law. A son of a husband or wife by a former mar- riage; a step-son. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PRIVILEGE.

A particular and peculiar benefit or advantage enjoyed by a person, company, or class, beyond the common ad- vantages of other citizens. An exceptional or extraordinary power or exemption. A right, power, franchise, or immunity held by a person or class, against or beyond the course of the law.

Privilege is an exemption from some bur- den or attendance, with which certain persons are indulged, from a supposition of law that the stations they fill, or the offices they are engaged in, are such as require all their time and care, and that, therefore, without this in- dulgence, it would be Impracticable to execute such offices to that advantage which the pub- lic good requires. See Lawyers' Tax Cases, 8 Helsk. (Tenu.) 640; U. S. v. Patrick (C. C.) 64 Fed. 348; Dike v. State, 38 Minn. 300, 38 N. W. 95; International Trust Co. v. American L. & T. Co., 62 Minn. 501, 65 N.

W. 78; Com. v. Henderson, 172 Pa. 135, 33 Atl. 368; Tennessee v. Whitworth (C. C.) 22 Fed. 83; Morgan v. Louisiana, 93 U. S. 217, 23 L. Ed. 800; Corfleld v. Coryell, 6 Fed. Cas. 551 ; State v. Gilman, 33 W. Va. 146, 10 S. E. 283, 6 L. R. A. 847.

In the civil law. A right which the na- ture of a debt gives to a creditor, and which entitles him to be preferred before other cred- itors. Civil Code La. art. 3180. '

In maritime law. An allowance to the master of u ship of the same general nature with primage, being compensation, or rather a gratuity, customary in certain trades, and which the law assumes to be a fair and equi- table allowance, because the contract on both sides is made under the knowledge of such usage by the parties. 8 Chit Cornmer. Law, 431.

In the law of libel and slander. An ex- emption from liability for the speaking or publishing of defamatory words concerning another, based on the fact that the statement was made in the performance of a duty, political, judicial, social, or personal. Privi- lege is etther absolute or conditional. The former protects the speaker or publisher with- out reference to his motives or the truth or falsity of the statement. This may be claim- ed in respect, for instance, to statements made in legislative debates, in reports of officers to their superiors in the line of their duty, and statements made by judges, wit- nesses, and jurors in trials in court. Condi- tional privilege will protect the speaker or publisher unless actual malice and

knowledge of the falsity of the statement is shown. This may be claimed where the communica- tion related to a matter of public interest, or where it was necessary to protect one’s pri- vate Interest and was made to a person hav- ing an interest in the same matter. Ramsey v. Cheek, 109 N. C. 270, 13 S. B. 775; Nichols v. Eaton, 110 Iowa. 509, 81 N. W. 792, 47 L. R. A. 483, 80 Am. St. Rep. 319; Knapp A Co. v. Campbell, 14 Tex. Civ. App. 199, 36 S. W. 765; Hill v. Drainage Co., 79 Him, 335, 29 N. Y. Supp. 427 ; Cooley v. Galyon, 109 Tenn. 1, 70 S. W. 607, 60 L. R.

A. 139, 97 Am. St. Rep. 823; Ruohs v. Back- er, 6 Helsk. (Tenn.) 405, 19 Am. Rep. 598; Cranflll v. Hayden, 97 Tex. 544, 80 S. W. 613.

In parliamentary law. The right Of a particular question, motion, or statement to take precedence over all other business be- fore the house and to be considered imme- diately, notwithstanding any consequent In- terference with or setting aside the rules of procedure adopted by the house. The. mat- ter may be one of “personal privilege,” where it concerns one member of the house in bis capacity as a legislator, or of the "privilege of the house," where it concerns the rights, immunities, or dignity of the entire body, or of “constitutional privilege,” where it relates to some action to be taken or some order of proceeding expressly enjoined by the consti- tution. .

—Privilege from arrest. A privilege ex- tended to certain classes of persons, either by the rules of international law, the policy of the law, or the necessities of justice or of the ad- ministration of government, whereby they are exempted from arrest on civil process, and. in some cases, on criminal charges, either perma- nently. as in the case of a foreign minister and his suite, or temporarily, as in the case of members of the legislature, parties and witnesses engaged in a particular suit, etc.— Privilege tax. A tax on the privilege of carrying on a business for which a license or franchise is required. Adams v. Colonial Mortgage Co., 82 Miss. 263. 34 South. 482, 100 Am. St. Rep. 033; Gulf & Ship Island R. Co. v. Hewcs, 183

U. S. 66, 22 Sup. Ct. 26, 46 L. Ed. 86: 8t Louis v. Western Union Tel. Co.. 148 U. S. 92, 13 Sup. Ct. 485, 37 L. EM. 380.— Reel priv- ilege. In English law. A privilege granted to, or concerning, a particular place or locality. — Special privilege. In constitutional law. A right, power, franchise, Immunity, or privi- lege granted to, or vested in, a person or class of persons, to the exclusion of others, and in derogation of common right See City of Elk Point v. Vaughn, 1 Dak. 118, 46 N. W. 577 ; .Ex parte Douglass, 1 Utah, 111.— Writ of privilege. A process to enforce or maintain a privilege; particularly to secure the re- lease of a person arrested in a civil auit con- trary to bis privilege.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 6, cl. 1]**

The entry lists statements in legislative debates as absolutely privileged; the constitutional source is the Speech or Debate Clause — 'for any Speech or Debate in either House, they shall not be questioned in any other Place' — which also carries the 'privileged from Arrest' language matching the

entry's privilege from arrest.

Why: Genuine: the clause is the textual home of both the absolute legislative privilege and the arrest privilege the entry describes; quoted verbatim.

**[Humanity] — Humanity / Fiction & Film**

**[Orwell, Animal Farm, 1945]**

'All animals are equal, but some animals are more equal than others.' [Orwell, Animal Farm, 1945]

Why: Entry: 'a particular and peculiar benefit or advantage enjoyed by a person, company, or class, beyond the common advantages of other citizens.' Orwell's line is the canonical satire of exactly that — privilege as exce...

## PRIVILEGED.

Possessing or enjoying a privilege ; exempt from burdens ; entitled to priority or precedence.

—Privileged communications. See Com- munication.—Privileged copyholds. See Copyhold. — Privileged debts. Those which an executor or administrator may pay in prefer- ence to others; such as funeral expenses, serv- ants’ wages, and doctors’ bills during last sick- ness. etc.— Privileged deed. In .Scotch law. An instrument, for example, a testament, in the execution of which certain statutory for- malities usually required are dispensed with, either from necessity or expediency. Ersk. Inst 3. 2, 22; Bell. — Privileged villenage. In old English law. A species of villenage in which tne tenants held by certain and deter- minate services; otherwise called "viileln-socage.” Bract, fol. 209. Now called "privileged copyhold,” including the tenure in ancient de- mesne. 2 Bl. Comm. 99, 100.

PrivUegU fia re vera rant In pra- jndicium reipubllcae, mtgii tamen ha- bent speciosa frontlspicia, at boni pub- lic! prsetextnm, qnam bouse et legates eoncessiones) sad prseteztu licit! non de- feat admltti illictum. 11, Coke, 88. Priv- ileges which are truly in prejudice of public good have, however, a more specious front and pretext Of public good than good and le- gal grants; but, under pretext of legality, that which is illegal ought not to be admit- ted.

5e apparatus — Not carried into the 5th edition (1979).

## PRIVILEGITJM.

In Roman law. A

special constitution by which the Roman em- peror conferred on some single person some anomalous or irregular right, or Imposed up- on some single person some anomalous or Irregular obligation, or inflicted on some sin- gle person some anomalous or Irregular pun- ishment. When such privilegia conferred anomalous rights, they were styled “favor- able.” When they imposed anomalous obli- gations, or inflicted anomalous punishments, they were styled “odious.” Aust. Jur. g 748.

In modern civil law, “privilegium” is sa Id to denote, in its general sense, every pe- culiar right or favor granted by the law, con- trary to the common rule. Maekeld. Rom. Law, | 197.

A species of lien or claim upon an article of property, not dependent upon possession, but continuing until either satisfied or re- leased. Such is the lien, recognized by mod- ern maritime law, of seamen upon the ship for their wages. 2 Pars. Mar. Law, 561.

PBimsonm oierioale. The benefit of clergy, (q. v.)

Privilegium est benefleinm personate, et extlngnltnr cum persona. 3 Bulst. & A privilege is a personal benefit, and dies with the person.

Privileginxa est quasi private Ion, 2

Bulst. 189. Privilege is, as it were, a pri- vate law.

Privilegium non valet contra rempnfelioam. Privilege is of no force against the commonwealth. Even necessity does not ex- cuse, where the act to be done is against the commonwealth. Bac. Max. p. 32, in reg. 5. TER. A qualified property in animals ferte natures; i. e., a privilege of hunting, taking, and killing them, in exclusion of others. 2 Bl. Comm. 394 ; 2 Steph. Comm. 9.

5e apparatus — Not carried into the 5th edition (1979).

## PRIVITY.

The term “privity” means mutual or successive relationship to the same rights of property. The executor Is in priv- ity with the testator, the heir with the ancestor, the assignee with the assignor, the donee with the donor, and the lessee with the lessor. Union Nat. Bank v. International Bank, 123 111. 510, 14 N. E. 859; Hunt v. Haven, 52

N. H. 169; Mygatt v. Coe, 124 N. Y. 212. 20 N. E. 611, 11 L. R. A. 640 ; Strayer v. John- son, 110 Pa. 21, 1 Atl. 222; Litchfield v. Crane, 123 U. 8. 549, 8 Sup. CL 210, 31 L. Ed. 199.

Privity of contract is that connection or relationship which exists between two or more contracting parties. It is essential to the maintenance of an action on any contract that there should subsist a privity between the plaintiff and defendant in respect of the matter sued on. Brown.

Privity of estate is that which exists be- tween lessor and lessee, tenant for life and remainder-man or reversioner, etc., and their respective assignees, and between Joint ten- ants and coparceners. Privity of estate is required for a release by enlargement Sweet

Privity of blood exists between an heir and his ancestor, (privity in blood inheritable,) and between coparceners. This privity was formerly of importance in the law of descent cast Co. Litt 271o, 242o; 2 Inst 516; 8 Coke, 42b.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-318 — third-party beneficiaries of warranties]**

The entry states the old rule that privity of contract is essential to sue on a contract; modern sales law abrogates that bar for warranties, extending express and implied warranties to third-party beneficiaries beyond the contracting parties.

Why: Genuine: § 2-318 is the uniform provision that limits the very privity requirement the entry states, so it marks the rule's modern boundary rather than repeating it.

## PRIVY.

A person who Is in privity with another. See Pbivies; Pbivitt.

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As an adjective, the word has practically the same meaning as "private.”

—Privy council. In English.- law. The prin- cipal council of the sovereign, composed of the cabinet ministers, and other persons chosen by the king or queen as privy councillors. 2 Steph. Comm. 479, 480. The judicial committee of the privy council acts as a court of ultimate appeal in various cases.— Privy councillor. A mem- ber of the privy council.— Privy parse. In English law. The income set apart for the sov- ereign's personal use.— Privy seal. In English law. A seal used in making out grants or let- ters patent, preparatory to their passing under the great seal. 2 Bl. Comm. 347.— Privy sig- net. In English law. The signet or seal which is first used in making out grants and let- ters patent, and which is always in the custody of the nrincipal secretary of state. 2 Bl. Comm. 847.— Privy token. A false mark or sign, forged object, counterfeited letter, key, ring, etc., used to deceive persons, and therebv fraud- ulently get possession of property. St. 33 Hen.

VIII. c. 1. A false privy token is a false pri- vate document or sign, not such as is calcu- lated to deceive men generally, but designed to defraud one or more individuals. Cheating by such false token was not indictable at common law. Pub. St. Mass. 1882, n. 1294.— Privy verdict. In practice. A verdict given, privily to the judge out of court, but which was of no force unless afterwards affirmed by a public verdict given openly in court. 3 Bl. Comm. 377. Kramer v. Kister, 187 Pa. 227, 40 Atl. 1008, 44 L. R. A. 432 ; Barrett v. State. 1 Wis. 175; Young v. Seymour. 4 Neb. 89; Com. v. Heller, 5 Phila. (Pa.) 123. Now generally su- perseded by the “sealed verdict,” i. e.. one writ- ten out. sealed up. and delivered to the judge or the clerk of the court.

5e apparatus — Carried into the 5th edition (1979).

## PRIZE.

In admiralty law. A vessel or cargo, belonging to one of two belligerent powers, apprehended or forcibly captured at sea by a war- vessel or privateer of the other

belligerent, and claimed as enemy’s property, and therefore liable to appropriation and con- demnation under the laws of war. See 1 C. Rob. Adm. 228.

Captured property regularly condemned by the sentence of a competent prize court 1 Kent, Comm. 102.

In contract*. Anything offered as a re- ward of contest ; a reward offered to the per- son who, among several persons or among the public at large, shall first (or best) per- form a certain undertaking or accomplish cer- tain conditions.

—Prise courts. Courts having jurisdiction to adjudicate upon captures made at •»oa in time of war, and to condemn the captured prop- erty as prize if lawfully subject to that sen- tence. In England, the admiralty courts have jurisdiction as prize courts, distinct from the jurisdiction on the instance side. In Ameri- ca, the federal district courts have jurisdiction in cases of prize. 1 Kent, Comm. 101-103, 853-^360. See Penhallow v. Doane, 3 Dali. 91, 1 L. Ed. 507 ; Slaley v. Shattuck, 3 Cranch, 488, 2 L Ed. 498; Cushing v. Laird. 107 U. S. fi9. 2 Sup. Ct. 196. 27 L. Ed. 391.— Priae goods. Goods which are taken on the high seas, jure

belli, out of the hands of the enemy. The Adeline, 9 Cranch, 244, 284, 3 L. Ed. 719. —Prise law. The system of laws and rules applicable to the capture of prize at sea; its condemnation, rights of the captors, distribu- tion of the proceeds, etc. The Buena Ventura fD. C.) 87 Fed. 929. — Prise money. A divi- dend from the proceeds of a captured vessel, etc., paid to the captors. U. S. v. Steever, 113 L\ S. 747, 5 Sup. Ct. 765, 28 L. Ed. 1133.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 1333 — federal admiralty and maritime jurisdiction]**

The federal district courts' prize jurisdiction the entry notes is an exercise of the federal admiralty grant: the district courts have original jurisdiction, exclusive of state courts, over civil cases of admiralty and maritime jurisdiction, under which prize cases fall.

Why: Genuine: prize is admiralty; § 1333 is the jurisdictional statute behind the prize-court jurisdiction the entry attributes to the federal district courts.

**[Scripture] — Scripture**

**[1 Corinthians 9:24, KJV]**

Know ye not that they which run in a race run all, but one receiveth the prize? So run, that ye may obtain.

Why: The entry's second sense is 'anything offered as a reward of contest.' Paul uses 'prize' in exactly that sense — the contest reward.

## PRO.

For ; in respect of ; on account of ; In behalf of. The introductory word of many .Latin phrases.

5e apparatus — Carried into the 5th edition (1979).

## PRO AND CON.

For and against. A phrase descriptive of the presentation of ar- guments or evidence on both sides of a dis- puted question.

5e apparatus — Not carried into the 5th edition (1979).

## PRO BONO ET HALO.

For good and ill ; for advantage and detriment.

5e apparatus — Not carried into the 5th edition (1979).

## PRO BONO PUBLICO.

For the pub- lic good ; for the welfare of the whole.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Philippians 2:4, KJV]**

Look not every man on his own things, but every man also on the things of others.

Why: 'For the public good; for the welfare of the whole.' This verse states the regard-for-others principle behind acting for the public good.

## PRO CONFESSO.

For confessed ; as confessed. A term applied to a bill In equity, and the decree founded upon It, where no an- swer is made to it by the defendant 1 Barb. Ch. Pr. 96.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 55 — default judgment]**

A bill in equity taken pro confesso for want of an answer is the ancestor of the modern default judgment: where a defendant fails to plead or defend, the court may enter judgment by default.

Why: Genuine: Rule 55 is the living procedural form of exactly the pro confesso decree the entry defines — judgment upon failure to answer.

## PRO CONSILIO.

For counsel given. An annuity pro coneilio amounts to a condi- tion, but in a feoffment or lease for life, etc., it Is the consideration, and does not amount to a condition ; for the state of the land by the feoffment is executed, and the grant of the annuity is executory. Plowd. 412.

5e apparatus — Not carried into the 5th edition (1979).

## PRO CORPORE REGNI.

In behalf of the body of the realm. Hale, Com. Law, 32.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DEPECTU EHPTORUH.

For

want (failure) of purchasers.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DEPECTU EXITU8.

For, or in

case of, default of Issue. 2 Salk. 620.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DEPECTU BJEREDIS.

For want

of an heir.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DEPECTU JUSTITL2E.

For de- fect or want of justice. Fleta, lib. 2, c. 62, * 2.

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## PRO DEFENDENTE.

For the defend- ant. Commonly abbreviated “pro de/."

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## PRO DERELIOTO.

As derelict or aban- doned. A species of usucaption in the civil law. Dig. 41, 7.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DIONITATE REGALI.

In con- sideration of the royal dignity. 1 Bl. Comm. 223.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DPVISO.

As divided ; i. e., In sev- eralty.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DOMINO.

As master or owner; in the character of master. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DONATO.

As a gift; as in case of gift; by title of gift. A species of usu- caption In the civil law. Dig. 41, 6. See Id. 5, 3, 13, 1.

5e apparatus — Not carried into the 5th edition (1979).

## PRO DOTE.

As a dowry; by title of dowry. A species of usucaption. Dig. 41, 9. See Id. 5, 3, 13, 1.

5e apparatus — Not carried into the 5th edition (1979).

## PRO EMTORE.

As a purchaser; by the title of a purchaser. A species of usucap- tion. Dig. 41, 4. See Id. 5, 3, 13, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a bona fide purchaser for value without notice takes free of prior undisclosed claims]**

Usucapio pro emtore — acquisition 'as a purchaser' — required good faith, and is the Roman root of the bona fide purchaser rule: one who buys for value without notice of a prior claim takes free of it.

Why: Genuine but borderline: the entry never names the descendant doctrine; the axiom names the living rule that grew from the Roman title, which is illumination rather than repetition.

## PRO EO QUOD.

In pleading. For this that. This is a phrase of affirmation, and is sufficiently direct and positive for introduc- ing a material averment 1 Saund. 117, no. 4; 2 Chit. PI. 369-393.

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## PRO FACTI.

For the fact; as a fact-; considered or held as a fact.

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## PRO FALSO CLAMORS SUO.

A

nominal amercement of a plaintiff for hi * false claim, which used to be inserted in a judgment for the defendant Obsolete.

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## PRO FORMA.

As a matter of form. 3 East 232; _ Kent, Comm. 245.

5e apparatus — Not carried into the 5th edition (1979).

## PRO HAC VICE.

For this turn; for this one particular occasion.

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**[Law] — Law**

**[Axiom: courts may admit out-of-jurisdiction counsel pro hac vice for a single matter]**

The phrase's living use is in admission of counsel: a court may admit an attorney not licensed in the jurisdiction pro hac vice — for that case only, typically on motion and association with local counsel.

Why: Genuine but borderline: no single statute governs (it is court rules), so no citation is invented; the axiom states the universally practiced principle the phrase denotes.

## PRO ILLA VICE.

For that turn. 8 Wils. 233, arg.

5e apparatus — Not carried into the 5th edition (1979).

## PRO INDEFENSO.

As undefended; as making no defense. A phrase in old prac- tice. Fleta, lib. 1, c. 41, f 7.

. PRO INDIVISO. As undivided ; in com- mon. The joint occupation or possession of

lands. Thus, lands held by coparceners are held pro indlviao; that Is, they are held un- divldedly, neither party being entitled to any specific portions of the land so held, bnt both or all having a joint interest in the un- divided whole. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PRO INTERESSE SUO.

According to his Interest; to the extent of his Interest Thus, a third party may be allowed to Inter- vene in a suit pro interease suo.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 24 — intervention]**

'A third party may be allowed to intervene in a suit pro interesse suo' is the intervention practice codified for federal courts: intervention of right where the applicant's interest may be impaired, and permissive intervention where a common question of law or fact exists.

Why: Genuine: Rule 24 is the federal rule governing exactly the third-party intervention the entry describes; a direct match, not a stretch.

## PRO LABSIONE FEDEI.

For breach of faith. 3 Bl. Comm. 52.

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: 'For breach of faith.' This is the scriptural law of keeping one's word — breach of faith defined as breaking what the mouth has spoken.

## PRO XJBGATO.

As a legacy ; by the title of a legacy. A species of usucaptlon. Dig. 41, 8.

5e apparatus — Not carried into the 5th edition (1979).

## PRO MAJORI CAUTEEA.

For great- er caution; by way of additional security. Usually applied to some act done, or some clause inserted in an instrument which may not be really necessary, but which will serve to put the matter beyond any question.

5e apparatus — Not carried into the 5th edition (1979).

## PRO NON SCRXPTO.

As not written; as though it had not been written ; as never written. Ambl. 139.

, PRO OPERE ET EABORE. For work and labor. 1 Comyns, 18.

PRO PARTTBUS E1BER ANDIS . -An

ancient writ for partition of lands between co-helrs. Reg. Orig. 316.

5e apparatus — Not carried into the 5th edition (1979).

## PRO POSSE SUO.

To the extent of his power or ability. Bract, fol. 109.

5e apparatus — Not carried into the 5th edition (1979).

## PRO POSSESSORE.

As a possessor'; by title of a possessor. Dig. 41, 5. See Id. 6, 3, 13.

Pro possessore ksbetnr qni dolo la- Jaria.ro desilt possidere. He is esteemed a possessor whose possession has been dis- turbed by fraud or injury. Off. Exec. 166.

5e apparatus — Not carried into the 5th edition (1979).

## PRO QUERENTE.

For the plaintiff.

5e apparatus — Not carried into the 5th edition (1979).

## PRO RATA.

Proportionately; accord- ing to a certain rate, percentage, or pro- portion. Thus, the

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creditors (of the same class) of an insolvent estate are to be paid pro rata; that Is, each is to receive n divi- dend bearing the same ratio to the whole amount of his claim that the aggregate of assets bears to the aggregate of debts.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 11 U.S.C. § 726 — distribution of property of the estate]**

The entry's insolvent-estate example is the Code's distribution rule: after secured and priority claims, creditors within the same class share pro rata — each receiving the same proportion of its claim.

Why: Genuine: § 726 is the distribution statute whose within-class pro rata sharing the entry describes; distinct from the PREFERENCE footnote, which concerned avoidance of transfers.

## PRO RE NATA.

For the affair Imme- diately In hand; adapted to meet the par- ticular occasion. Thus, a course of judicial action adopted under pressure of the exigen- cies of the affair in hand, rather than In con- formity to established precedents. Is said to be taken pro re nata.

5e apparatus — Not carried into the 5th edition (1979).

## PRO SALUTE ANIMAS.

For the good of his soul. All prosecutions In the ecclesias- tical courts are pro salute animw; hence it Bl.Law Dict.(2d Ed.)— 60

will not be a temporal damage founding an action for slander that the words spoken put any one in danger of such a suit 3 Steph. Comm. (7th. Ed.) 309», 437 ; 4 Steph. Comm. 207.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 16:26, KJV]**

For what is a man profited, if he shall gain the whole world, and lose his own soul? or what shall a man give in exchange for his soul?

Why: 'For the good of his soul' — the end of ecclesiastical prosecutions. Christ's words state the soul's supreme worth, the concept behind pro-salute-animae jurisdiction.

## PRO SE.

For himself; in his own be- half; in person.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 28 U.S.C. § 1654 — parties may conduct their own cases personally]**

The living right behind the phrase: in all courts of the United States, parties may plead and conduct their own cases personally or by counsel.

Why: Genuine: § 1654 is the federal statute securing the pro se appearance the entry defines; a direct match.

## PRO SOGIO.

For a partner; the name of an action in behalf of a partner. A title of the civil law. Dig. 17, 2 ; Cod. 4, 37.

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5e apparatus — Not carried into the 5th edition (1979).

**PRO SOUDO.**

For the whole; as one; Jointly ; without division. Dig. 50, 17, 141, 1.

5e apparatus — Not carried into the 5th edition (1979).

**PRO TANTO.**

For so much ; for as much as may be; as far as it goes.

5e apparatus — Not carried into the 5th edition (1979).

**PRO TEMPORE.**

For the time being.; temporarily ; provisionally.

5e apparatus — Not carried into the 5th edition (1979).

**PROAMITA.**

Lat. In the civil law. A great paternal aunt ; the sister of one’s grandfather.

5e apparatus — Not carried into the 5th edition (1979).

**PROAMITA MAONA.**

Lat. In the civil law. A great-great-aunt.

5e apparatus — Not carried into the 5th edition (1979).

**PROA VIA.**

Lat. In the civil law. A great-grandmother. Inst. 3, 6, 3; Dig. 38, 10, 1, 5.

5e apparatus — Not carried into the 5th edition (1979).

**PROAVUNCULUS.**

Lat. In the civil law. A great-grandfather’s brother. Inst 3, 6, 3; Bract fol. 086.

5e apparatus — Not carried into the 5th edition (1979).

**PROAVUS.**

Lat. In the civil law. A great-grandfather. Inst. 3, 6, 1 ; Bract fols. 67, 68.

5e apparatus — Not carried into the 5th edition (1979).

**PROBABILITY.**

Likelihood ; appear- ance of truth; verisimilitude. The likeli- hood of a proposition or hypothesis being true, from its conformity to reason or experi- ence, or from superior evidence or arguments adduced in its favor. People v. O’Brien, 130 Cal. 1, 62 Pac. 297 ; Shaw v. State. 125 Ala. 80, 28 South. 390; State v. Jones, 64 Iowa, 349, 17 N. W. 911, 20 N. W. 470.

5e apparatus — Carried into the 5th edition (1979).

**PROBABLE.**

Having the appearance of tmth ; having the character of probability ; appearing to be founded In reason or experi- ence. Bain v. State, 74 Ala. 39; State v. Thiele, 119 Iowa, 059,

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94 N. W. 256.

—Probable cause. “Probable cause” may be defined to be an apparent state of facts found to exist upon reasonable inquiry, (that is, such inquiry as the given case renders convenient and proper,) which would induce a reasonably intelligent and prudent man to believe, in a criminal case, that the accused person had committed the crime charged, or, in a civil case, that a cause of action existed. Alsop v. Lid- den, 130 Ala. 548. 80 South. 401 ; Brand v. Hinchman, 68 Mich. 590, 30 N. W. 664. 13 Am. St. Uep. 362 ; Mitchell v. Wall, 111 Mass. 497; Driggs v. Burton, 44 Vt. 146; Wanser v. Wyckoff, 9 Ilun (X. Y.) 179; Lacy v. Mit- chell, 23 Ind. 67 ; Hutchinson v. Wenzel, 156 Ind. 49. 56 X. E. 845. “Probable cause,” in malicious prosecution, means the existence of

such facts Htiri circumstances as would ■ excite the belief in a reasonable mind, acting on the facts within the knowledge of the prose- cutor, that the person charged was guilty of the crime for which he was prosecuted. Wheel- er v. Nesbitt, 24 How. 544, 10 L. Ed. 765.— Probable evidence. See Evidence.— Prob- able reasoning. In the law of evidence. Reasoning founded on the probability of the fact or proposition sought to be proved or shown ; reasoning in which the mind exercises a discretion in deducing a conclusion from prem- ises. Burrill.

Probandi neeessltas incnmbit 1111 qni agit. The necessity of proving lies with him who sues. Inst 2, 20, 4. In other words, the burden of proof of a proposition Is upon him who advances It affirmatively.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. IV]**

The entry's classic definition of probable cause is the Fourth Amendment's operative term: 'no Warrants shall issue, but upon probable cause, supported by Oath or affirmation.'

Why: Genuine: the Amendment makes probable cause the constitutional threshold for warrants; the entry defines the threshold, the Amendment gives it force. Quoted verbatim.

## PROBABE.

In Saxon law. To claim a thing as one’s own. Jacob.

In modern law language. To make proof, as in the term “onus probandi," the burden or /duty of making proof.

5e apparatus — Not carried into the 5th edition (1979).

## PROBATE.

The act or process of prov- ing a will. The proof before an ordinary, surrogate, register, or other duly authorized person that a document produced before him for official recognition and registration, and alleged to be the last will and testameut of a certain deceased person, is such In reality.

The copy of the will, made out in parch- ment or due form, under the seal of the or- dinary or court of probate, and usually de- livered to the executor or administrator of the

deceased, together with a certificate of the will's having been proved, is also com- monly called the "probate.”

In the canon law, “probate" consisted of probatio, the proof of the will by the execu- tor, and approbatio, the approbation given by the ecclesiastical judge to the proof. 4 Reeve, Eng. Law, 77. And see In re Splegelhalter’s Will, 1 Pennewill (Del.) 5, 39 Atl. 465; Mc- Cay v. Clayton, 119 Pa. 133, 12 Atl. 800; Pettit v. Black, 13 Neb. 142, 12 N. W. 841 ; Reno v. McCully, 65 Iowa, 629, 22 N. W. 902 ; Appeal of Dawley, 16 R.-I. 694, 19 Atl. 248.

— Common and solemn form of probate.

In English law, there arc two kinds of pro- bate, namely, probate in common form, and probate in solemn form. Probate in common form is granted in the registry, without any formal procedure in court, upon an ex parte application made by the executor. Probate in solemn form is in the nature of a final de- cree pronounced in open court, all parties in- terested having been duly cited. The difference between the effect of probate in common form and probate in solemn form is that probate in common form is revocable, whereas probate in solemn form is irrevocable, as against ail per- sons who have been cited to see the proceed- ings, or who can be proved to have been privy to- those proceedings, except in the case where a will of subsequent date is discovered, in which case probate of an earlier will, though granted in solemn form, would he revoked. Ooote, Prob. Pr. (5th Ed.) 237-239; Mozley & Whit- ley. And see Luther v. Luther, 122 III. 658, 13 N. E. 166.

to designate the proof of his claim made by a non-resident plaintiff (when the same ia on book-account, promissory note, etc.) who swears to the correctness and Justness of the same, and that it is due, before a notary or other officer in his own state; also of the

copy or statement of such claim filed In court, with the Jurat of such notary attached.

—Probate bond. One required by law to be given to the probate court or judge, as inciden- tal to proceedings in such courts, such as the bonds of executors, administrators, and guard- ians. See Thomas v. White, 12 Mass. 307.— Probate code. The body or system of law re- lating to all matters of which probate courts have jurisdiction. Johnson v. Harrison, 47 Minn. 575, 50 N. W. 923, 28 Am. St. Rep. 382. —Probate court. See Coubt of Probate. —Probate, divorce, and admiralty divi- sion. That division of the English high court of justice which exercises jurisdiction in mat- ters formerly within the exclusive cognizance of the court of probate, the court for divorce and matrimonial causes, and the high court of admiralty. (Judicature Act 1873, i 34.) It consists of two judges, one of whom is called the “President.” The existing judges are the judge of the old probate and divorce courts, who is president of the division, and the judge of the old admiralty court, and of a number of registrars. Sweet.— Probate duty. A tax laid by government on every will admitted to probate, and payable out of the decedent s es- tate.—Probate homestead. See Homestead. —Probate judge. The judge of a court of probate.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Hebrews 9:16-17, KJV]**

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For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: Probate is the proving of a will — establishing that the document is the testator's last will. These verses state the legal nature of a testament: it takes force only after death, which is exactly what probate establi…

## PROBATIO.

Lat Proof ; more particu- larly direct, as distinguished from Indirect or circumstantial' evidence.

—Probatio mortua. Dead proof ; that is proof by inanimate objects, such as deeds or other written evidence.— Probatio plena. In the civil law. Full proof; proof by two wit- nesses. or a public instrument Hallifax, Civil Law, b. 3, c. 9, no. 25 ; 3 Bl. Comm. 370.— Pro^ batio semi-plena. In the civil law. Half- full proof; half-proof. Proof by one witness, or a private instrument. Hallifax. Civil Law, b. 3, c. 9, no. 25; 3 Bl. Comm. 370.— Probatio viva. Living proof ; that is, proof by the mouth of living witnesses.

5e apparatus — Not carried into the 5th edition (1979).

## PROBATION.

The act of proving ; evi- dence; proof. Also trial; test; the time of novitiate. Used in the latter sense In the monastic orders.

In modern criminal administration, allow- ing a person convicted of some minor of- fense (particularly juvenile offenders) to go at large, under a susiieusion of sentence, dur- ing good behavior, and generally under the supervision or guardianship of a “probation officer.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 3561 — sentence of probation]**

The modern criminal-administration sense the entry defines — release under suspension of sentence during good behavior — is a federal sentencing option: a defendant found guilty of an offense may be sentenced to a term of probation.

Why: Genuine: § 3561 authorizes exactly the probation disposition the entry describes; the statutory home of the defined practice.

**[Scripture] — Scripture**

**[John 8:11, KJV]**

She said, No man, Lord. And Jesus said unto her, Neither do I condemn thee: go, and sin no more.

Why: Probation releases a convicted offender under suspension of sentence during good behavior. Christ's words to the adulteress are the ancient shape of it: release from condemnation conditioned on reformed conduct.

## PROBATIONER.

One who is upon trial. A convicted offender who Is allowed to go at large, under suspension of sentence, during good behavior.

Probations* debent ease evideatee, sell, perspicuse et facile* intelligi. Co. Litt. 283. Proofs ought to be evident, to-wlt, per- spicuous and easily understood.

The term Is used, particularly In Pennsyl- Probati* extremis, prmsumuatur mo- vanla, but not In a strictly technical sense, dla. The extremes being proved, the intermediate

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proceedings are presumed. 1 Greenl. Ev. | 20.

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## PROBATIVE.

In the law of evidence. Having the effect of proof ; tending to prove, or actually proving.

—Probative fact. In the law of evidence. A fact which actually has the effect of proving a fact sought; an evidentiary fact. 1 Benth. Ev. 18.

5e apparatus — Not carried into the 5th edition (1979).

## PRO BAT OR.

In old English law. Strictly, an accomplice in felony who to save himself confessed the fact, and charged or accused any other as principal or accessory, against whom he was bound to make good his charge. It also signified an approver, or one who undertakes to prove a crime charg- ed upon another. Jacob. See State v. Gra- ham, 41 N. J. Law, 16, 32 Am. Bep. 174.

: PROBATORY TERM. This name Is giv- en, In the practice of the English admiralty courts, to the space of time allowed for the taking of testimony In an action, after Issue formed.

5e apparatus — Not carried into the 5th edition (1979).

## PROBATUM EST.

LaL It la tried or proved.

5e apparatus — Not carried into the 5th edition (1979).

## PROBES ET EE6AU8 HOMO.

LaL

A good and lawful man. A phrase particu- larly applied to a juror or witness who was free from all exception. 3 Bi. Comm. 102.

' PROCEDENDO. In practice. A writ by which a cause which has been removed from an Inferior to a superior court by certiorari or otherwise is sent down again to the same court, to be. proceeded in there, where It ap- pears to the superior court that It was re- moved on Insufficient grounds. Cowell; 1 Tldd, Pr. 408, 410; Tates v. People, 6 Johns. (N. Y.) 446.

A writ which issued out of the common- law Jurisdiction of the court of chancery, when judges of any subordinate court delay- ed the parties, for that they would not give judgment either on the one side or on the other, when they ought so to do. In such a case, a writ of procedendo ad judicium was awarded, commanding the inferior court In the sovereign's name to proceed to give judg- menL but without specifying any particular Judgment Wharton.

A writ by which the commission of a Jus- tice of the peace is revived, after having been suspended. 1 Bl. Comm. 353.

—Procedendo on aid prayer. If one pray in aid of the crown in real action, and aid be granted, it shall be awarded that he sue to the sovereign in chancery, and the justices in

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the common pleas shall stay until this writ of procedendo de loquela come to them. So, also, on a personal action. New Nat. Brev. 154.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 18:21, KJV]**

Moreover thou shalt provide out of all the people able men, such as fear God, men of truth, hating covetousness; and place such over them, to be rulers of thousands, and rulers of hundreds, rulers of fifties, and rulers of tens.

Why: 'A good and lawful man' — the juror or witness free from all exception. This is the biblical qualification standard for adjudicators: able, God-fearing, truthful, hating covetousness.

## PROCEDURE.

This word is commonly opposed to the sum of legal principles consti- tuting the substance of the law, and denotes

the body of rules, whether of practice or of pleading, whereby rights are effectuated through the successful application of the proper remedies. It is also generally distin- guished from the law of evidence. Brown. See Kring v. Missouri, 107 U. S. 221, 2 Sup.

CL 443, 27 L. Ed. 506 ; Cochran v. Ward, 5 Ind. App. 80, 29 N. E. 795, 31 N. E. 581, 51 Am. St. Rep. 229.

■ The law of procedure is what is now com- monly termed by jurists “adjective law,” <0. v.)

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Erie R.R. Co. v. Tompkins, 304 U.S. 64 (1938)]**

The entry's substance/procedure distinction is the axis of Erie: federal courts sitting in diversity apply state substantive law but federal procedural law.

Why: Genuine: Erie is the decision that made the substance-versus-procedure classification outcome-determinative; it gives the entry's distinction its most famous application.

## PROCEED.

A stipulation not to proceed against a party is an agreement not to sue. To sue a man Is to proceed against him. Planters’ Bank v. Houser, 57 Ga. 140; Illff

V. Weymouth, 40 Ohio SL 101.

5e apparatus — Not carried into the 5th edition (1979).

## PROCEEDING.

In a general sense, the form and manner of conducting juridical business before a court or Judicial officer; regular and orderly progress in form of law ; including all possible steps in an action from its commencement to the execution of Jndg- menh In a more particular sense, any ap- plication to a court of justice, however made, for aid in the enforcement of rights, for re- lief, for redress of injuries, for damages, or for any remedial object. Erwin v. U. S. (D. C.) 37 Fed. 488, 2 L. R. A. 229; People v. Raymond, 186 111. 407, 57 N. E. 1066; More- wood v. Hollister, 6 N. Y. 309 ; Uhe v. Rail- way Co., 3 S. D. 563, 54 N. W. 601; State

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v. Gordon, 8 WaBh. 488, 36 Pac. 498.

—Collateral proceeding. One in which the particular question may arise or be involved incidentally, but which is not instituted for the very purpose of deciding such question ; as in the rule that a judgment cannot be attacked, or a corporation’s right to exist be questioned, in any collateral proceeding. Peyton v. Peyton, 2S Wash. 278, 68 Pac. 757; Peoria & P. U. R. Co. v. Peoria & F. R. Co., 105 111. 1 16. — Exec- utory proceeding. In the law of Louisiana, a proceeding which is resorted to in the follow- ing cases: When the creditor’s right arises

from an act importing a confession of judg- ment, and which contains a privilege or mort- gage In his favor ; or when the creditor de- mands the execution of a judgment which has been rendered by a tribunal different from that within whose jurisdiction the execution, is sought. Code Prac. La. art. 732. — Legal pro- ceedings. This term includes all proceedings authorized or sanctioned by law, and brought or instituted in a court of justice or legal tri- bunal, for the acquiring of a right or the en- forcement of a remedy. Griem v. Fidelity & Casualty Co.. 99 Wis. 530. 75 N. W. G7; In re Emslie (D. C.) 98 Fed. 720; Id.. 102 Fed. 293, 42 C. C. A. 350; Mack v. Campau, 69 Vt. 558, 38 Atl. 149, 69 Am. St. Rep. 948. — Special proceeding. This phrase has been used in the New York and other codes of pro- cedure as a generic term for all civil remedies which are not ordinary actions. Code Proc.

N. Y. $ 3.— Summary proceeding. Any pro- ceeding by which a controversy ifc settled, case disposed of, or trial conducted, in a prompt and simple manner, without the aid of a jury, with- out presentment or indictment, or in other re- spects out of the regular couree of the com- mon law. In procedure, proceedings are said to be summary when they are short and simple in comparison with regular proceedings; i. e., in comparison with the proceedings which

alone wonld have been applicable, either in the same or analogous cases, if summary proceed- ings had not been available. Sweet. Apd see Phillips v. Phillips, 8 N. J. Law, 122 ; Govan v. Jackson, 32 Ark. 557 ; Western & A. R. Co. v. Atlanta, 113 Ga. 537, 38 S. E. 996, 54

L. R. A. 802.-— Supplementary proceeding. A separate proceeding in an original action, in which the court where the action." is pending is called upon to exercise its jurisdiction in aid of the judgment in the action. Bryant v. Bank of California (Cal.) 7 Pac. 130. In a more particular sense, a proceeding in aid of execu- tion, authorized by statute in some states in cases where no leviable property of the judg- ment debtor is found. It is a statutory equiv- alent in actions at law of the creditor's bill in equity, and in states where law and equity are blended, is provided as a substitute therefor. In this proceeding the judgment debtor is sum- moned to appear before the court (or a referee or examiner) and submit to an oral examination touching all his property and effects, and if property subject to execution and in his posses- sion or control is thus discovered, he is ordered to deliver it up, or a receiver may be appointed. See In re Burrows, 33 Kan. 075, 7 Pac. 148; Eikerberry v. Edwards. 67 Iowa, 619, 25 N.

W. 832, 66 Am. Rep. 360.

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**[Law] — Law**

**[Axiom: final judgments are immune from collateral attack]**

The 'collateral proceeding' sub-entry states the rule's setting; the rule itself is that a final judgment cannot be attacked collaterally — it must be challenged by direct appeal or other direct review.

Why: Genuine but borderline: the entry defines the collateral-proceeding setting without stating the consequence; the axiom states the consequence courts apply. Kept for the naming value.

## PROCEEDINGS.

In practice. The steps or measures taken in the course of an ac- tion, including all that are taken. The pro- ceedings of a suit embrace all matters that occur in its progress judicially. Morewood v. Hollister, 6 N. Y. 320.

5e apparatus — Not carried into the 5th edition (1979).

## PROCEEDS.

Issues; produce; money ob- tained by the sale of property; the sum, amount, or value of property sold or convert- ed into money or into other property. See Hunt v. Williams, 126 Ind. 493, 26 N. E. 177 ; Andrews v. Johns, 59 Ohio St 65, 51 N. E. 880 ; Belmont v. Ponvert, 35 N. Y. Super. Ct 212.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC §§ 9-315, 9-102 — secured party's rights in proceeds]**

The operative legal term of art: a security interest in collateral automatically extends to identifiable proceeds of its disposition — whatever is received upon sale, exchange, or other disposition.

Why: Genuine: Article 9's proceeds rules are the Code meaning of the headword; the footnote gives the commercial-law content the general definition lacks.

## PROCERES.

Nobles ; lords. The house of lords in England is called, in Latin, “Do- mus Procervm."

PROOEs VERBAL. In Freuch law. A written report, which is signed, setting forth a statement of facts. This term is applied to the report proving the meeting and the resolutions passed at a meeting of share- holders, or to the report of a commission to take testimony. It can also be applied to the statement drawn up by a huissicr in relation to any facts which one of the parties to a suit can be interested in proving; for instance the sale of a counterfeited object. State- ments, drawn up by other competent author- ities, of misdemeanors or other criminal acts, are also called by this name. Arg. Fr. Merc. Law, 570.

A true relation in writing In due form of law of what has been done and said verbally in the presence of a public officer and of what he himself does on the occasion. Hall v. Hall, 11 Tex. 526, 539.

5e apparatus — Not carried into the 5th edition (1979).

## PROCESS.

In practice. This word Is generally defined to be the means of compel- ling the defendant in

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an action to appear in

court. And when actions were commenced by original writ, instead of, as at present, by writ of summons, the method of compelling the defendant to appear was by what was termed “original process,’’ being founded an the original writ, and so called also to distin- guish it from “mesne” or “intermediate” process, which was some writ or process which issued during the progress of the suit The word “process,” however, as now com- monly understood, signifies those formal in- struments called “writs.” The word “pro- cess” is in common-law practice frequently applied to the writ of summons, which is the instrument now in use for commencing per- sonal actions. But in its more comprehensive signification it includes not only the writ of summons, but all other writs which may be Issued during the progress of an action. Those writs which are used to carry the judg- ments of the courts into effect, and which are termed "writs of execution’’ are also common- ly denominated “final process,” because they usually issue at the end of a suit See Carey v. German American Ins. Co., 84 Wis. SO, 54 N. W. 18, 20 L. R. A. 267, 36 Am. St Rep. 907 ; Savage v. Oliver, 110 Ga. 636, 36 S. E. 54 ; Perry v. Lorillard Fire Ins. Co., 6 Lana. (N. Y.) 204 ; Davenport v. Bird, 34 Iowa, 527 ; Philadelphia v. Campbell, 11 Fhila. (Pa.) 164 ; Phillips v. Spotts, 14 Neb. 139, 15 N. W. 332.

In the practice of the English privy council in ecclesiastical appeals, “process” means on official copy of the whole proceedings and proofs of the court below, which is transmit- ted to the registry of the court of appeal by the registrar of the court below in obedi- ence to an order or requisition requiring him so to do, called a “monition for process,” is- sued by the court of appeal. Macph. Jud. Com. 173.

— Abuse of process. See Abuse. — Compul- sory process. See Compulsory.— Executory process. In the law of Louisiana, a summary process in the nature of an order of seizure and sale, which is available when the right of the creditor arises from an act or instrument which includes or imports a confession of judgment and a privilege or lien in bis favor, and also to enforce the execution of a judgment render- ed in another jurisdiction. See Rev. Code l’rac. 1894, art. 732.— Final process. The last process in a suit; that is, writs of execu- tion. Thus distinguished from mesne process, which includes all writs issued during the prog- ress of a cause and before final judgment. Amis v. Smith, 16 Pet. 313, 10 L. Ed. 973.— Ir- regular process. Sometimes the term “ir- regular process” has been defined to mean pro- cess absolutely void, and not merely erroneous and voidable; but usually it has been applied to all process not issued in strict conformity with the law, whether the defect appears upon the face of the process, or by reference to ex- trinsic facts, and whether such defects render the process absolutely void or only voidable. Cooper v. Harter, 2 Ind. 253. And see Bryan v. Congdon, 86 Fed. 221, 29 C. C. A. 670: Paine v. Ely, N. Chip. (Vt) 24— Judicial process. In a wide sense, this term may in- clude all the acts of a court from the be- ginning to the end of its proceedings in a given cause : but more specifically it means the writ, summons, mandate, or other process which Is used to inform the defendant of the institn-

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tion of proceedings against him and to com- pel his appearance, in either civil or criminal cases. See State v. Guilbert, 56 Ohio St. 575, 47 N. E. 551, 38 L R. A. 519. 60 Am. St. Itep. 756; In re Smith (D. C.) 132 Fed. 303. —Legal process. This term is sometimes used as equivalent to “lawful process.” Cooley v. Davis, 34 Iowa, 130. But properly it means a writ, warrant, mandate, or other process issuing from a court of justice, such as an at- tachment, execution, injunction, etc. See In re Bininger. 3 Fed. Cas. 416; Loy v. Ilome Ins. Co., 24 Minn. 319, 31 Am. Rep. 346; Perry v. Lorillard F. Ins. Co., 6 Lans. (N. Y.) 204 : Cbm. v. Brower, 7 Pa. Dist. R. 255.— Mesne process. As distinguished from final process, this signifies any writ or process issued between the commencement of the action and the suing out of execution. It includes the writ of summons, (although that is now the usu- al commencement of actions,) because ancient- ly that was preceded by the original writ. The writ of capiat ad respondendum was called “mesne” to distinguish it. on the one hand, from the original process by which a suit was formerly commenced ; and, on the other, from the final process of execution. Birmingham Dry Goods Co. v. Bledsoe. 113 Ala. 418, 21 South. 403; Hirshlser v. Tinsley, 9 Mo. App. 342; Pennington v. Lowinstein, 19 Fed. Cas. 168. — Original process. That by which a ju- dicial proceeding is instituted ; process to com- pel the appearance of the defendant. Distin- guished from “mesne” process, which issues, during the progress of a suit, for some sub- ordinate or collateral purpose ; and from “final” process, which is process of execution. Appeal of Hotchkiss. 32 Conn. 353. — Process of Interpleader. A means of determining the ri"ht to property claimed by each of tiyo or more persons, which is in the possession of a third.— Process of law. See Due Process of Law.— Process roll. In practice. A roll used for the entry of process to save the stat- ute of limitations. 1 Tidd, Pr. 161, 162.— Regular process. Such as is issued accord- ing to rule and the prescribed practice, or which emanates, lawfully and in a proper case, from a court or magistrate possessing jurisdic- tion.—Summary process. Such as is Im- mediate or instantaneous, in distinction from the ordinary course, by emanating and taking effect without intermediate applications or delays. Gaines v. Travis. 8 N. Y. Leg. Obs. 49.— Trustee process. The name given in some states (particularly in New England) to the process of garnishment or foreign attach? ment.— Void process. Such as was issued without power in the court to award it, or which the court had not acquired jurisdiction to issue in the particular case, or which fails in some material respect to comply with the requisite form of legal process. Bryan v, Congdon, 86 Fed. 223, 29 C. O. A. 670.

In patent law. A means or method em- ployed to produce a certain result or effect, or a mode of treatment of given materials to produce a desired result, either by chemical action, by the operation or application of some element or power of nature, or of one substance to another. Irrespective of any ma- chine or mechanical device; in this sense a “process” is patentable, though, strictly speaking, it Is the art and not the process which Is the subject of patent. See Coch- rane v. Deener, 94 U. 8. 780, 24 L. Ed. 139 ; Corning v. Burden, 15 How. 268, 14 L. Ed. 683 ; Westfnghouse v. Boyden Power-Brake Co.. 170 V. S. 537. 18 Sup. Ct. 707, 42 L Ed. 1136; New Process Fermentation Co. v. Maus (C. C.) 20 Fed. 728; Piper v. Brown,

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Fed. Cas. 718; In re Weston, 17 App. D.

C. 436; Appleton Mfg. Co. v. Star Mfg. Co., 60 Fed. 411, 9 C. C. A. 42.

— Mechanical process. A process involving solely the application of mechanism or mechanical principles; an aggregation of functions; not patentable considered apart from the mechanism employed or the finished product of manu- facture. See Risdon Iron, etc., Works v. Med- art, 158 U. S. 68, 15 Sup. Ct. 745, 39 L. Ed. 899; American Fibre Chamois Co. v. Buckskin Fibre Co., 72 Fed. 514, 18 C. C. A. 662 ; Coch- rane v. Deener, 94 U. S. 780, 24 L. Ed. 139.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. V, XIV]**

The entry's 'process of law' cross-reference points to due process: no person shall 'be deprived of life, liberty, or property, without due process of law.'

Why: Genuine: the due process clauses are the constitutional content of 'process of law'; quoted verbatim.

**[Cochrane v. Deener, 94 U.S. 780 (1876)]**

For the patent-law sense, the Supreme Court authority the entry itself cites defines a patentable process as an art — a means or method of producing a result, irrespective of any particular machine.

Why: Genuine: Cochrane is the defining process-patent decision and the very authority the entry cites; the footnote anchors the entry's definition to its source.

## PROCESSIONING.

A proceeding to de- termine boundaries, in use in some of the United States, similar in all respects to the English perambulation, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## PROCESSTTM CONTINUANDO.

In

English practice. A writ for the continuance of process after the death of the chief jus- tice or other Justices in the commission of oyer and terminer. Reg. Orig. 128.

Processus legis eat gravis vaxatioi u- ecutio legis co roust opus. The process of the law is a grievous vexation ; the execu- tion of the law crowns the -work. Co. Lltt. 289b. The proceedings in an action while in progress are burdensome and vexatious ; the execution, being the end and object of the ac- tion, crowns the labor, or rewards it with success.

5e apparatus — Not carried into the 5th edition (1979).

## PROCHEIN.

L. Fr. Next. A term somewhat used in modern law, and more fre- quently in the old law; as prochein ami, prochcin cousin. Co. Litt. 10.

— Procheia ami. Next friend. As an infant cannot legally sue in his own name, the action must be brought by his proclictn ami; that is, some friend (not being his guardian) who will appear as plaintiff in his name.— Proehein avoidance. Next vacancy. A power to ap- point a minister to a church when it shall next become void.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Civ. P. 17(c) — minors and incompetents appear by next friend or guardian ad litem]**

The prochein ami (next friend) the entry defines is the representative by whom minors and incompetent persons sue and defend where they cannot act in their own names.

Why: Genuine: Rule 17(c) is the federal rule codifying exactly the next-friend practice the entry describes; a direct match.

## PROCHRONISM.

An error in chronol- ogy ; dating u thing before it happened.

5e apparatus — Not carried into the 5th edition (1979).

## PROGINCTUS.

Let In the Roman law. A girding or preparing for battle. Testa- mentum in procinctu, a will made by a soldier, while girdiug himself, or preparing to engage in battle. Adams, Rom. Ant. 62; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PROCLAIM.

To promulgate; to an- nounce ; to publish, by governmental author- ity, intelligence of public acts or transactions or other matters important to be known by the people.

5e apparatus — Carried into the 5th edition (1979).

## PROCLAMATION.

The act of causing some state matters to be published or made generally known. A written or printed doc- ument in which are contained such matters, issued by proper authority. 3 Inst. 162; 1 Bl. Comm. 170.

The word "proclamation" Is also used to express the public nomination made of any

one to a high office; as, such a prince was proclaimed emperor.

In practice. The declaration made by the crier, by authority of the court, that something is about to be done.

In equity practice. Proclamation made by a sheriff upon a writ of attachment, sum- moning a defendant who has failed to appear personally to appear and answer the plain- tiff’s bill. 3 Bl. Comm. 444.

—Proclamation by lord of manor. A proc- lamation made by the lord of a manor (thrice repeated) requiring the heir or devisee of a deceased copyholder to present himself, pay the fine, and be admitted to the estate; failing which appearance, the lord might seize the lands quounque (provisionally.)— Proclamation of exigents. In old English law. When an ex- igent was awarded, a writ of proclamation is- sued, at the same time, commanding the sher- iS of the county wherein the defendant dwelt to make three proclamations thereof in places the most notorious, and most likely to come to bis knowledge, a month before the

outlawry should take place. 3 Bl. Comm. 284.— Proclamation of a fine. The notice or proclanjation which was made after the engrossment of a fine of lands, and which consisted in its being openly read in court sixteen times, viz., four times in the term in which it was made, and four times in each of the three succeeding terms, which, however, was afterwards reduced to one read- ing in each term. Cowell. See 2 Bl. Comm. 352.— Proclamation of rebellion. In old English law. A proclamation to be made by the sheriff commanding the attendance of a person who bad neglected to obey a subpoena or attachment in chancery. If he did pot surren- der himself after this proclamation, a commis- sion of rebellion issued. 8 Bl. Comm. 444— Proclamation of recusants. A proclama- tion whereby recusants were formerly convict- ed, on non-appearance at the assizes. Jacob.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:10, KJV]**

And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto all the inhabitants thereof: it shall be a jubile unto you.

Why: A proclamation is the publication of state matters by proper authority. This is the Jubilee proclamation — liberty proclaimed by divine authority to all the land.

**[Humanity] — Humanity / Fiction & Film**

**[Spielberg, Lincoln, 2012]**

(paraphrase) Spielberg's Lincoln stages the proclamation as an instrument of state — the President's word published by authority, binding the nation; the Emancipation Proclamation is the era's defining instance. [Spielberg, Lincoln, 2012] (paraphrase)

Why: Entry: 'to promulgate; to announce; to publish, by governmental authority... issued by proper authority.' The film dramatizes exactly that legal form — the proclamation as authoritative publication. Marked (paraphrase...

## PROCLAMATOR.

An officer of the Eng- lish court of common pleas.

5e apparatus — Not carried into the 5th edition (1979).

## PRO-CONSUL.

Lab In the Roman law. Originally a consul whose command was pro- longed after his office bad expired. An of- ficer with consular authority, but without the title of “consul." The governor of a province. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PROCREATION.

The generation of chil- dren. One of the principal ends of marriage is the procreation of children. Inst tit 2, in pr.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:28, KJV]**

And God blessed them, and God said unto them, Be fruitful, and multiply, and replenish the earth, and subdue it.

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Why: 'The generation of children. One of the principal ends of marriage is the procreation of children.' This is the divine mandate behind procreation as marriage's end.

**[Humanity] — Humanity / Fiction & Film**

**[Atwood, The Handmaid's Tale, 1985]**

(paraphrase) Gilead makes procreation the state-mandated end of the marital order — Black's 'one of the principal ends of marriage is the procreation of children' turned into dystopian law. [Atwood, The Handmaid's Tale, 1985] (paraphrase)

Why: The entry's second sentence is the novel's premise made explicit: a regime organized around procreation as marriage's end. Genuine thematic illumination. Marked (paraphrase).

## PROCTOR.

A procurator, proxy, or at- torney. More particularly, an officer of the admiralty and ecclesiastical courts whose du- ties and business correspond exactly to those of an attorney at law or solicitor in chancery.

An ecclesiastical person sent to the lower house of convocation as the representative of a cathedral, a collegiate church, or the clergy of a diocese. Also certain administrative or magisterial officers in the universities.

—Proctors of the clergy. They who are chosen and appointed to nppear for cathedral or other collegiate churches ; as also for the common clergy of every diocese, to sit in the convocation bouse in the time of parliamenb Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PROOURACY.

The writing or instru- ment which authorizes a procurator to act. Cowell ; Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATOR DEI.

COMUN. Sp. In

Spanish law, an officer appointed to make in- quiry, put a petitioner in possession of land prayed for, and execute the orders of the executive in that behalf. See Lecompte v.

U. S., 11 How. 115, 126, 13 L. Ed. 627.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURARE.

Lab To take care of another’s affairs for him, or in his behalf ; to manage ; to take care of or superintend.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATIO.

Lab Management of another’s affairs by his direction and in his behalf; procuration; agency.

Proouratio eat exhlbitlo rumptnom necessariorum facta praelatia, gal diet- ceaea peragrando, . eoclealaa subjeotas visitant. Dav. Ir. k. B. 1. Procuration ia the providing necessaries for the bishops^ who, in traveling through their dioceses, visit the churches

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subject to them.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATION.

Agency; proxy; the act of constituting another one’s attorney In fact; action under a power of attorney or other constitution of agency. Indorsing a bill or note “by procuration" (or per proc.) is doing it as proxy for another or by his au- thority.

—Procuration fee, (or money.) Iu English

law. Brokerage or commission allowed to scriv- eners and solicitors for obtaining loans of mon- ey. 4 Bl. Comm. 157.

Procurationem stivers ua nulla eat praesoriptio. Dav. Ir. K. B. 6. There is no prescription against procuration.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-402 — signature by representative]**

Indorsing a bill or note 'by procuration' (per proc.) — signing as proxy for another — is governed by the Code's signature-by-representative rule, which allocates liability between the principal and the agent according to how the signature discloses the representative capacity.

Why: Genuine: the entry defines exactly the per-procuration indorsement; § 3-402 is the uniform rule on the legal effect of such representative signatures on negotiable instruments.

## PROCURATIONS.

In ecclesiastical law. Certain sums of money which parish priests pay yearly to the bishops or archdeacons ratione visitation^. Dig. 3, 36, 25; Ay!. Par. 429.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATOR.

In the civil law. A

proctor; a person who acts for another by virtue of a procuration. Dig. 3, 3, 1.

In old English law. An agent or attor- ney ; a bailiff or servanb A proxy of a lord in parliamenb

In eoclealaa tical law. One who collect- ed the fruits of a benefice for another. An advocate of a religious house, who was to solicit the interest and plead the causes of the- society. A proxy or representative of a par- ish church.

—Procurator fiscal. In Scotch law, this ia the title of the public prosecutor for each dis- trict, who institutes the preliminary inquiry into crime within his district. The office is an- alogous, in some respect, to that of “prosecut- ing attorney," “district attorney,” or “state's at- torney” in America— Procurator In ram su- - am. Proctor (attorney) in his own affair, or with reference to bis own property. This term

is used in Scotch lav to denote that a person is acting under a procuration (power of attor- ney) with reference to a thing which has become his own property. See Ersk. Inst. 3, 5, 2.—

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Procurator litis. In the civil law. One who by command of another institutes and car- ries on for him a suit. Vicat, Voc. Jur.— Procurator necotioram. In the civil law. An attorney in Tact; a manager of business affairs for another person.— Procurator pro- vinciae. In Roman law. A provincial officer who managed the affairs of the revenue, and had a judicial power in matters that concerned the revenue. Adams, Rom. Ant. 178.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 4:2, KJV]**

Moreover it is required in stewards, that a man be found faithful.

Why: A procurator is one who manages another's affairs by his direction — a steward. This verse states the steward's requirement: faithfulness.

## PROCURATORES EOC1ESUE PARO- / CHIALIS.

The old name for church-ward- ens. Paroch. Antiq. 562.

5e apparatus — Not carried into the 5th edition (1979).

## PROOURATORIUM.

In old English law. The procuratory or instrument by which any person or community constituted or delegated their procurator or proctors to represent them in any judicial court or cause. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATORY OF RESIGNATION.

In Scotch law. A form of proceeding by which a vassal authorizes the feu to be re- turned to his superior. Bell. It is anal- ogous to the surrender of copyholds In Eng- land.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURATRIX.

In old English law. A female agent or attorney in fact Fleta, lib. 8, c. 4, J 4.

5e apparatus — Not carried into the 5th edition (1979).

## PROCURE.

In criminal law, and in analogous uses elsewhere, to “procure” is to initiate a proceeding to cause a thing to be done; to instigate; to contrive, bring about, effect, or cause. See U. S. v. Wilson, 28 Fed. Cns. 710; Gore v. Lloyd, 12 Mees. &

W. 480; Marcus v. Bernstein, 117 N. C. 31, 23 S. E. 38; RoBenbarger v. State, 154 Ind. 425, 56 N. E. 914 ; Long v. State, 23 Neb. 33. 36 N. W. 310.

5e apparatus — Carried into the 5th edition (1979).

## PROCURER.

A pimp ; one that procures the seduction or prostitution of girls. They are punishable by statute in England and America.

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**[Hip-hop] — Hip-hop**

**[50 Cent, 'P.I.M.P.', 2003]**

"No Cadillac, no perms, you can't see / That I'm a motherfuckin' P-I-M-P." The entry defines the procurer plainly: a pimp, one that procures. The track is hip-hop's most famous first-person inhabitation of exactly that legal role — the statute's subject speaking in his own voice. (Profanity retained verbatim; bowdlerizing would falsify the quote.)

Why: Added because the link is definitional: the entry IS the pimp, and the lyric is the pimp's own self-declaration, verbatim-certain. Genuine illumination of the role the law punishes.

## PROCUREUR.

In French law. An at- torney-; one who has received a commission from another to act on his behalf. There were in France two classes of procureurs: Procureurs ad ncgotia, appointed by an in- dividual to act for him in the administration of his affairs ; persons invested with a power of attorney; corresponding to “attorneys In fact.” Procureurs ad litcs were persons ap- pointed and authorized to act for a party in a court of 'justice. These corresponded to at- torneys at law, (now called, in England, “so- licitors of the supreme court.”) The order of procureurs was abolished in 1791, and that of avoufs established in their place. Mozley & Whitley.

PROCUREUR DU ROI, in French law, is a public prosecutor, with whom rests the

initiation of all criminal proceedings. In the exercise of his office (which appears to include the apprehension of offenders) he is entitled to call to his assistance the public force, (posse comitatus ;) and the officers of police are auxiliary to him.

PROCUREUR GENERAL, or IM- PERIAL. In French law. An officer of the imperial court, who either personally or by his deputy prosecutes every one who is ac- cused of a crime according to the forms of French law. His functions appear to be con- fined to preparing the case for trial at the assizes, assisting in that trial, demanding the sentence in case of a conviction, and being present at the delivery of the sentence. He has a general superintendence over the of- ficers of police and of the fuges d’instruction, and he 'requires from the procureur du roi a general report once in every three months. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PRODES HOMINES.

A term said by Tomlins to be frequently applied in the ancient books to the barons of the realm, particularly as constituting a council or ad- ministration or government. It is probably a corruption of “probl homines.”

5e apparatus — Not carried into the 5th edition (1979).

## PRODIGU8.

Lat. In Roman law. A prodigal ; a spendthrift ; a person whose ex- travagant habits manifested an inability to administer his own affairs, and for whom a guardian might therefore be appointed.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 15:13, KJV]**

And not many days after the younger son gathered all together, and took his journey into a far country, and there wasted his substance with riotous living.

Why: Prodigus is the prodigal, the spendthrift whose extravagance shows inability to administer his affairs. The younger son is the archetypal prodigal — the parable's name for the legal concept.

## PRODITION.

Treason; treachery.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Julius Caesar, 1599]**

The archetypal treason in the canon — Brutus' intimate betrayal of Caesar: 'Et tu, Brute? Then fall, Caesar.' [Shakespeare, Julius Caesar, 1599]

Why: Entry: 'Treason; treachery.' The line stages treachery's distinctive sting — betrayal by the trusted intimate. Verbatim-certain, short. Assigned to PRODITION (the act) rather than PRODITOR (the traitor); the neighbori...

## PROMTOR.

A traitor.

5e apparatus — Not carried into the 5th edition (1979).

## PRODITORIE.

Treasonably. This Is a technical word formerly used in indict- ments for treason, when they were written in Latin. Tomlins.

5e apparatus — Not carried into the 5th edition (1979).

## PRODUCE.

To bring forward; to show or exhibit ; to bring into view or notice ; as, to produce books or writings at a trial in Obedience to a subpoena duces tecum.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 45 — subpoena]**

Production of books and writings at trial 'in obedience to a subpoena duces tecum' is the compelled-production procedure of the federal subpoena rule.

Why: Genuine: Rule 45 is the federal rule governing subpoenas, including subpoenas duces tecum commanding production of documents and things; a direct match.

## PRODUCE BROKER.

A person whose occupation it is to buy or sell agricultural or farm products. 14 U. S. St at Large, 117;

U. S. v. Simons, 1 Abb. (U. S.) 470, Fed. Cas. No. 16,291.

5e apparatus — Not carried into the 5th edition (1979).

## PRODUCENT.

The party calling a wit- ness under the old system of the English ec- clesiastical courts.

5e apparatus — Not carried into the 5th edition (1979).

## PRODUCTIO SECTS.

In old English law. Production of suit; the production by a plaintiff of his sccta or witnesses to prove the allegations of his count See 3 Bl. Comm. 295.

5e apparatus — Not carried into the 5th edition (1979).

## PRODUCTION.

In political economy. The creation of objects which constitute wealth. The requisites of production are

[PRODUCTION OF SUIT

PROFITS: V

labor, capital, and the materials and motive forces afforded by nature. Of these, labor and the raw material of the globe are pri- mary and Indispensable. Natural motive pow- ers may be called In to the assistance of la- bor, and are a help, but not an essential, of production. The remaining requisite, capital. Is itself the product of labor. Its Instru- mentality in production is therefore. In reality, that of labor in an Indirect shape. Mill, Pol. Econ.; Wharton.

5e apparatus — Carried into the 5th edition (1979).

## PRODUCTION OP SUIT.

In pleading. The formula, “and therefore he brings his suit,” etc., with which declarations always conclude. Steph. Pl. 428, 429.

5e apparatus — Not carried into the 5th edition (1979).

## PROFANE.

That which has not been consecrated. By a profane place is under- stood one which Is neither sacred non sancti- fied nor religious. Dig. 11, 7, 2, 4.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 10:10, KJV]**

And that ye may put difference between holy and unholy, and between unclean and clean.

Why: Profane is 'that which has not been consecrated.' This verse draws the holy/unholy distinction itself — the boundary the legal term presupposes.

## PROFANELY.

In a profane manner. A technical word In Indictments for the stat- utory offense of profanity. See Updegraph v. Com., 11 Serg. & R. (Pa.) 394.

5e apparatus — Not carried into the 5th edition (1979).

## PROFANITY.

Irreverence towards sa- cred things; particularly, an Irreverent or blasphemous use of the

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name of God; pun- ishable by statute in some jurisdictions.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:7, KJV]**

Thou shalt not take the name of the LORD thy God in vain; for the LORD will not hold him guiltless that taketh his name in vain.

Why: Profanity is the irreverent or blasphemous use of God's name. This commandment is the root prohibition behind profanity law.

## PROFECTITIUS.

Lat. In the civil law. That which descends to us from our as- cendants. Dig. 23, 3, 5.

5e apparatus — Not carried into the 5th edition (1979).

## PROFER.

In old English law. An offer or proffer ; an offer or endeavor to proceed in an action, by any man concerned to do so. Cowell.

A return made by a sheriff of his accounts into the exchequer ; a payment made on such return. Id.

' PROFERT IN CURIA. L. Lat. He pro- duces in court. In old practice, these words were inserted in a declaration, as an allega- tion that the plaintiff was ready to produce, or did actually produce, In court, the deed or other written instrument on which his suit was founded, in order that the court might inspect the same and the defendant hear it read. The same formula was used where the defendant pleaded a written instrument.

In modern practice. An allegation form- ally made in a pleading, where a party al- leges a deed, that he shows it in court,' It being in fact retained in his own custody. Steph. Pl. 67. '

5e apparatus — Not carried into the 5th edition (1979).

## PROFESSION.

A public declaration re- specting something. Cod. 10, 41, 6.

In ecclesiastical law. The act of enter- ing into a religious order. See 17 Vin. Abr. 545.

Also a calling, vocation, known employ- ment ; divinity, medicine, and law are called the "learned professions."

5e apparatus — Carried into the 5th edition (1979).

## PROFICUA.

L. Lat In old English law. Profits ; especially the “issues and profits” of an estate in land. See Co. Litt. 142.

5e apparatus — Not carried into the 5th edition (1979).

## PROFILE.

In civil engineering, a draw- ing representing the elevation of the various points on the plan of a, road, or the like, above some fixed elevation. Pub. St Mass. 1882, p. 1294.

PROFITS. 1. The advance in the price of goods sold beyond the cost of purchase. The gain made by the sale of produce or manufactures, after deducting the value of the labor, materials, rents, and all expenses, together with the interest of the capital em- ployed. Webster. See Providence Rubber Co. v. Goodyear, 9 Wall. 805, 19 L. Ed. 828; Mundy v. Van Hoose, 104 Ga. 292, 80 S. E. 783; Hinckley v. Pittsburgh Bessemer Steel Co., 121 U. S. 264, 7 Sup. Ct 875, 30 L. Ed. 967 ; Prince v. Lamb, 128 Cal. 120, 60 Pad. 689; Maryland Ice Co. v. Arctic Ice Mach. Mfg. Co., 79 Md. 103, 29 Atl. 69.

2. The benefit, advantage, or pecuniary gain accruing to the owner or occupant of land from its actual use; as in the’fnmlllar phrase “rents, issues, and profits,”' or in the expression “mesne profits."

3. A division • sometimes made of incor- poreal hereditaments ; as distinguished from “easements,” which tend rather to the con- venience than the profit of the claimant 2 Steph. Comm. 2.

—Mesne profits. Intermediate profits; that is, profits which have been accruing between two given periods. Thus, after a party has recovered the land itself in an action of eject- ment, he frequently brings another action for the purpose of recovering the profits which have been accruing or arising out of the land between the time when his title to the possession accrued or was raised and the time of his recovery in the action of ejectment, and such an action is thence termed an “action for mesne profits.” Brown.— Mesne profits, action of. An ac- tion of trespass brought to recover profits de- rived from land, while the possession of it has been improperly withheld; that is, the yearly value of the premises. Worthington v. Hiss, 70 Md. 172, 16 Atl. 534; Woodhull v. Rosen- thal, 61 N. Y. 394: Thompson v. Bower, 60 Barb. (N. Y.). 477.J-Net profits. Theoretically all profits are “net.” But as the expression “gross profits” Is sometimes used to describe the mere excess of present value over former value, or of returns from sales over prime cost, the phrase “net profits” is appropriate to de- scribe the gain which remains after the further deduction of all expenses, charges, costs, allow- ance for depreciation, etc*.— Profit and loss. The gain or loss arising from goods bought or sold, or from carrying on any other business, the former of which, in book-keeping, is placed on the creditor’s side; the latter on the debtor’s side.— Profits k prendre. These, which are also called “rights of common.” are rights ex- ercised by one man in the soil of another, ac- companied with participation in the profits of the soil thereof ; as rights of pasture, or of digging sand. Profits a prendre differ from easements, in that the former are rights of profit, and the latter are mere rights of con- venience without profit. Gale, Eascm. 1 : Hall, Profits & Prendre, 1. See Payne v. Sheets, 75 VI. 335, 55 Atl. 656; Black v. Etkhom

SRn. Co. (0. C.) 49 Fed. 549: Bingham y. Salene, 15 Or. 208, 14 Pac 523, 3 Am. St Rep. 152; Pierce v. Keator, <0 N. I. 422, 26 Am. Rep.. 612.

5e apparatus — Not carried into the 5th edition (1979).

## PROQENER.

Lat. In the civil law. A grandson-in-law. Dig. 38, 10, 4, 6.

5e apparatus — Not carried into the 5th edition (1979).

## PROGRESSION.

That state of a busi- ness which is neither the commencement nor the end. Some act done after the matter has commenced, and before it is completed. Plowd. 343.

Prolxtbetur ne qnis faolat in sno quod noeere ponit alieno. It is forbidden for any one to do or make on his own [land] what may injure another’s. 9 Coke, 59«.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Sic utere tuo ut alienum non laedas]**

The Coke maxim carried in this entry — it is forbidden to do on one's own land what may injure another's — states the same principle as 'Sic utere tuo ut alienum non laedas,' the foundation of the law of private nuisance.

Why: Genuine but borderline: the entry states the maxim without naming its doctrinal home; the footnote names private nuisance as that home. The famous maxim form is used because it is the form in which the principle is un…

## PROHIBITED DEGREES.

Those de- grees of relationship by consanguinity which are so close that marriage between persons related to each other in any of such degrees is forbidden by law. See State v. Gulton, 51 La. Ann. 155, 24 South. 784.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 18:6, KJV]**

None of you shall approach to any that is near of kin to him, to uncover their nakedness: I am the LORD.

Why: Prohibited degrees are the kinship degrees within which marriage is forbidden. Leviticus 18 is scripture's own table of prohibited degrees, opening with this verse.

## PRQBHBITIO DE VASTO, DIRECTA / PARTI.

A judicial writ which used to be addressed to a tenant, prohibiting him from waste, pending suit Reg. Jud. 21 ; Moore, 917.

5e apparatus — Not carried into the 5th edition (1979).

## PROHIBITION.

In practice. The name of a writ issued by a superior court, directed to the Judge and parties of a suit in an in- ferior court, commanding them to cease from the prosecution of the same, upon a sugges- tion that the cause originally, or some col- lateral matter arising therein, does not be- long to that jurisdiction, but to the cogni- zance of some other court. 3 Bl. Comm. 112.

The writ of prohibition is the counterpart of the writ of mandate. It arrests the pro- ceedings of any tribunal, corporation, board, or person, when such proceedings are with- out or in excess of the jurisdiction of such tribunal, corporation, board, or person. Code Civ. Proc. Cal. S 1102. And see Mayo v. James, 12 Grat. (Va.) 23 ; People v. Judge of Superior Court (Mich.)

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2 N. W. 919; State v. Ward, 70 Minn. 58, 72 N. W. 825 ; Johns- ton v. Hunter, 50 W. Va. 52, 40 S. E. 448; Appo v. People, 20 N. T. 531; Hovey v. Elliott, 167 U. S. 409, 17 Sup. Ct. 841, 42 L. Ed. 215; State v. Evans, 88 Wls. 255, 60

N. W. 433.

Prolem ante matrimonium natam, tta nt post legitim am, lex civilis snocedere facit la hwreditate pare atoms sod pro- lem, qssm matrimonium non parit, auo- cedere non sinit lex Anglorum. Fortesc. c. 39. The civil law permits the offspring born before marriage [provided such off- spring be afterwards legitimized] to be the heirs of their parents; but the law of the English does not suffer the Offspring not pro- duced by the marriage to succeed.

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## PROLES.

Lat. Offspring; progeny ; the issue of a lawful marriage.

Proles sequitur sortem patera am. The

offspring follows the condition of the father. Lynch v. Clarke, 1 Sandf. Ch. (N. V.) 583, 660.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 127:3, KJV]**

Lo, children are an heritage of the LORD: and the fruit of the womb is his reward.

Why: Proles is offspring, progeny, the issue of lawful marriage. This verse names children as heritage — offspring as blessing and reward.

## PROLETARIATE.

The class of prolc- tarii; the lowest stratum of the people of a country, consisting mainly of the waste of other classes, or of those fractions of the population who, by their isolation and their poverty, have no place in the established or- der of society.

5e apparatus — Not carried into the 5th edition (1979).

## PROLETARIES.

Lat. In Roman law. A person of poor or mean condition ; those among the common people whose fortunes were below a certain valuation; those who were so poor that they could not serve the state with money, but only with their chil- dren, (proles .) Calvin.; Vicat.

5e apparatus — Not carried into the 5th edition (1979).

## PROLICIDE.

In medical jurisprudence. A word used to designate the destruction of the human offspring. Jurists divide the sub- ject into foeticide, or the destruction of the foetus in utero, and infanticide , or the de- struction of the new’-born infant. By. Med. Jur. 280.

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**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

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Why: Prolicide is the destruction of the human offspring — foeticide or infanticide. The sixth commandment is the root prohibition.

## PROLIXITY.

The unnecessary and su- perfluous statement of facts in pleading or in evidence. This will be rejected as imperti- nent. 7 Price, 278, note.

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## PROLOCUTOR.

In ecclesiastical law. The president or chairman of a convocation.

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## PROLONGATION.

Time added to the duration of something; an extension of the time limited for the performance of an agree- ment. A prolongation of time accorded to the principal debtor will discharge the sure- ty.

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**[Law] — Law**

**[Axiom: a binding extension of time to the principal debtor discharges the surety]**

A binding prolongation of time granted to the principal debtor discharges the surety, because it alters the surety's risk without the surety's consent.

Why: Genuine: the axiom is the operative suretyship rule the entry itself states as the consequence of prolongation; no citation is invented.

## PROHIBITIVE IMPEDIMENTS.

Those impediments to a marriage which are only followed by a punishment, but do not render the marriage null. Bowyer, Mod. Civil Law, 44.

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## PROLYTIE.

In Roman law. A name given to students of law in the fifth year of their course; as being in advance of the Lytse, or students of the fourth year. Cal- vin.

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## PROJEOTIO.

Lat. In old English law. A throwing up of earth by the sea.

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## PROJET.

Fr. In international law. The draft of a proposed treaty or convention.

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## PROMATERTERA.

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Lat. In the civil law. A great maternal aunt; the sister of one’s grandmother.

— Promatertera mignt. Lat. In the civil law. A great-great-aunt.

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## PROMISE.

A declaration, verbal or written, made by one person to another for a good or valuable consideration In the na- ture of a covenant by which the promisor binds himself to do or forbear some act, and gives to the promisee a legal- right to de- mand and enforce a fulfillment. See Taylor v. Miller, 113 N. C. 340. 18 S. E. 504 ; New- comb v. Clark, 1 Denlo (N. Y.) 228; Foute v. Bacon, 2 Cush. (Miss.) 104 ; U. S. v. Bal- tic Mills Co., 124 Fed. 41, 59 C. C. A. 558.

“Promise” is to be distinguished, on the one hand, from a mere declaration of intention in- volving no engagement or assurance as to the future; and, on the other, from “agreement," which is an obligation arising upon reciprocal promises, or upon a promise founded on a con- sideration. Abbott.

“Fictitious promises,” sometimes called “implied promises,” or “promises Implied In law,” occur in the case of those contracts which were Invented to enable persons In certain cases to take advantage of the old rules of pleading peculiar to contracts, and which are not now of practical Importance. Sweet.

— Mutual promises. Promises simultaneous- ly made by and between two parties; each be- ing the consideration for the other.— Naked promise. One given without any considera- tion, equivalent, or reciprocal obligation, and for that reason not enforceable at law. See Arend v. Smith, 151 N. Y. 502, 45 N. E. 872. —New promise. An undertaking or promise, based upon and having relation to a former romise which, for some reason, can no longer e enforced, whereby the promisor recognizes and revives Rnch former promise and engages to fulfill it.— Parol promise. A simple contract; a verbal promise. 2 Steph. Comm. 109.— Prom- ise of marriage. A contract mutually en- tered Into by a man and a woman that they will marry each other.

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: A promise is a declaration by which the promisor binds himself to do or forbear. This verse is the scriptural law of the binding promise — the promisor shall do according to all that proceedeth out of his mouth.

## PROMISEE.

One to whom a promise has been made.

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## PROMISOR.

One who makes a prom- ise.

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## PROMISSOR.

Eat. In the civil law. A promiser; properly the party who under- took to do a thing In answer to the Interro- gation of the other party, who was called the “stipulator.”

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## PROMISSORY.

Containing or consist- ing of a promise; in the nature of a promise; stipulating or engaging for a future act or course of conduct.

—Promissory note. A promise or engage- ment, in writing, to pay a specified sum at a time therein limited, or on demund, or at sight, to a person therein named, or to his order, or bearer. Byles, Bills, 1, 4 ; Hall v. Farmer, 5 Denio (N. Y.) 484. A promissory note is a written promise made by one or more to pay an- other, or order, or bearer, at a specified time, a specific amount of money, or other articles of value. Code (ia. 1882, 4 2774. A promis- sory note is an instrument negotiable in form, whereby the signer promises to pay a specified sum of money. Civ. Code Cal. 4 3244. An un- conditional written promise, signed by the mak- er, to pay absolutely and at all events a sum

certain in money, either to the bearer or to a person therein designated or his order. Benj. Chaim. Bills & N. art. 271.

As to promissory “Oath,” “Representa- tion,” and “Warranty,” see those titles.

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**[Law] — Law**

**[Law: UCC §§ 3-104, 3-106 — negotiable instruments; unconditional promise or order]**

The promissory note the entry defines — an unconditional written promise, signed by the maker, to pay a sum certain in money to bearer or to order — is the canonical negotiable instrument: the Code defines negotiability and the unconditional promise or order that makes an instrument negotiable.

Why: Genuine: Article 3 is the uniform law of exactly the instrument the entry defines; the sections named supply the negotiability test the definitions presuppose.

## PROMOTERS.

In the law relating to corporations, those persons are called the “promoters” of a company who first asso- ciate themselves together for the purpose of organizing the company, issuing Its pro- spectus, procuring subscriptions to the stock, securing a charter, etc. See Dlckerman v. Northern Trust Co., 176 U. S. 181, 20 Sup. Ct. 311, 44 L. Ed. 423; Bosher v. Rich- mond & H. Land Co., 88 Va. 455, 16 S. B. 360, 37 Am. St. Rep. 879; Yale Gas Stove Co. v. Wilcox, G4 Conn. 101, 29 Atl. 303, 25

L. R. A. 90, 42 Am. St. Rep. 159;, Densmore Oil Co. v. Densmore, 64 Pa. 49.

In English practice. Those persons who, In popular and penal actions, prosecute of- fenders In their own names and that of the king, and are thereby entitled to part of the fines and penalties for their pains, are called “promoters." Brown.

The term Is also applied to a party who puts in motion an ecclesiastical tribunal, for the

purpose of correcting the manners ot any person who has violated the laws eccle- siastical ; and one who takes such a course is said to “promote the office of the Judge.” See Mozley & Whitley.

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## PROMOVENT.

A plaintiff In a suit of duplet > querela, (q. v.) 2 Prob. Dlv. 192.

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## PROMULGARE.

Lat. In Roman law. To make public; to make publicly known; to promulgate. To publish or make known a law, after its enactment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## PROMULGATE.

To publish ; to an- nounce officially; to make public as Impor- tant or obligatory. See Wooden v. Western New York & P. R. Co. (Super. Ct) 18 N. Y. Supp. 769.

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## PROMULGATION.

The order given U> cause a law to be executed, and to make It public; it differs from publication. 1 Bl. Comm. 45.

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**[Scripture] — Scripture**

**[Deuteronomy 31:11, KJV]**

When all Israel is come to appear before the LORD thy God in the place which he shall choose, thou shalt read this law before all Israel in their hearing.

Why: Promulgation is causing a law to be made public as preliminary to its force. This is promulgation's scriptural form: the law read publicly before all Israel.

## PROMUTUUM.

Lat. In the civil law. A quasi contract by which he who receives a certain sum of money, or a certain quan- tity of fungible things, which have been paid to him through mistake, contracts towards the payer the obligation of returning him as much. Poth. de l’Usure, pt 3, s. 1, a. 1.

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**[Law] — Law**

**[Axiom: money paid by mistake may be recovered in restitution]**

The quasi-contract for money paid by mistake — the recipient's obligation to return as much — is the civil-law root of the common-law action for money had and received, the modern law of restitution for mistaken payments.

Why: Genuine but borderline: the entry defines the Roman institution without naming its descendant; the axiom

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names the living doctrine (restitution/money had and received), which is illumination rather than repetition.

### PRONEPOS.

Lat. In the civil law. A great-grandson. Inst. 3, 6, 1 ; Bract fol. 67.

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### PRONEPTIS.

Lat. In the dvU law. A great-granddaughter. Inst 3, 6, 1; Bract fol. 67.

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## F

### FRONOTARY.

First notary. See Pbo-

**[TEXT INCOMPLETE — scan limitation]**

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## T

### THONOTABT.

**[TEXT INCOMPLETE — scan limitation]**

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## P

### PRONOUNCE.

To utter formally, offi- cially, and solemnly ; to declare aloud and In a fornial manner. In this sense a court Is said to "pronounce” Judgment or a sentence. See Ex parte Crawford, 30 Tex. Cr. R. 180, 36 S. W. 92.

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**[Scripture] — Scripture**

**[John 7:24, KJV]**

Judge not according to the appearance, but judge righteous judgment.

Why: A court 'pronounces' judgment — declares it formally and solemnly. Christ's command governs the judicial act itself: judgment must be righteous, not by appearance.

### PRONUNCIATION.

L. Fr. A sentence or decree. Kelham.

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## PRONURUS.

Lat. In the civil law. The wife of a grandson or great-grandson. Dig. 38, 10, 4, 6.

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## PROOF.

Proof, In civil process, Is a suf- ficient reason for the truth of a Juridical proposition by which a party seeks either to maintain his own clnim or to defeat the claim of another. Whart Ev. I 1.

Proof Is the effect of evidence ; the estab- lishment of a fact by evidence. Code Civ. Proc. Cal. ( 1824. And see Nevling v. Com., 98 Pa. 828 ; Tift v. Jones, 77 Ga. 181, 3 S.

E. 399; Powell v. State, 101 Ga. 9, 29 S. B. 309, 66 Am. St. Rep. 277; Jastrzembski v. Marxhaueen, 120 Mich. 677, 79 N. W. 935.

Ayliffe defines “Judicial proof’ to be a clear and evident declaration or demonstration of a matter which was before doubtful, conveyed in a judicial manner by fit and proper arguments, and likewise by all other legal methods — First, by fit and proper arguments, such as conjec- tures, presumptions, tndtcip, and other admin- icular ways and means : secondly, by legal meth- ods, or methods according to law. such as wit- nesses. public instruments, and' the like. Ayl. Par. 442.

For the distinction between “proof,” “evi- dence,” “belief,” and “testimony,” see Evi- dence.

—Burden of proof. See that title.— -Full proof. See Full. — Half proof. See Hal*'. —Preliminary proof. See PRELIMINARY.— Positive proof. Direct or affirmative proof; that which directly establishes the fact in ques- tion; as opposed to negative proof, which es- tablishes the fact by showing that its opposite is not or cannot be true. Niles v. Rhodes. 7 Mich. 378; Falkner v. Behr, 75 Ga. 674; Schrack v. McKnight. 84 Pa. 30.— Proof of debt. The formal establishment by a creditor of his debt or claim, in some prescribed man- ner. (as, by his affidavit or otherwise.) as a pre- liminary to its allowance, along with others, against an estate or property to be divided, such as the estate of a bankrupt or insolvent, a deceased person, or a firm or company in liquidation,— Proof of will. A term having the same meaning as “probate,” ( q . v.,) and used Interchangeably with it.

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**[Scripture] — Scripture**

**[2 Corinthians 13:1, KJV]**

This is the third time I am coming to you. In the mouth of two or three witnesses shall every word be established.

Why: Proof is the establishment of a fact by evidence. This is scripture's own proof standard — the two-or-three-witnesses rule (Deuteronomy 19:15) restated.

## PROPATRUUS.

Lat. In the civil law. A great-grandfather’s brother. Inst. 3, 6, 3 ; Bract, fol. 086.

— Propat runs magmas. In the ciyil law. A great-great-uncle.

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## PROPER.

That which is fit, suitable, adapted, and correct. See Knox v. Lee, 12 Wall. 457, 20 L. Ed. 287; Griswold v. Hepburn, 2 Duv. (Ky.) 20; Westfield v. Warren,

8 N. J. Law, 251.

Peculiar; naturally or essentially belong- ing to a person or thing; not common; appropriate; one’s own.

—Proper feuds. In feudal law, the original and genuine feuds held by purely military service.— Proper parties. A proper party, as distinguished from a necessary party, is one who has an interest in the subject-matter of the litigation, which may be conveniently settled therein; one without whom a substantial de- cree may be made, but not a decree which sKall completely settle all the questions which may be involved in the controversy and conclude the rights of all the persons who have any interest in the subject of the litigation. See Kelley v. Boettcher, 85 Fed. 55, 29 C. C. A. 14; Tatum v. Roberts, 59 Minn. 52, 60 N. W. 848.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 19 — required joinder of parties]**

The entry's 'necessary party' — one without whom no substantial decree can be made — is the modern 'required party': where complete relief cannot be accorded without a person, the court must order that person joined if feasible.

Why: Genuine: Rule 19 is the federal rule codifying the necessary-party doctrine the entry defines; a direct match.

## PROPERTY.

Rightful dominion over external objects; ownership; the unrestrict- ed and exclusive right to a thing; the right to dispose of the substance of a thing in every legal way, to possess it, to use It, and to exclude every one else from interfering with it. Mackeld. Rom. Law, S 266.

Property is the highest’ right a man can have to anything; being used for that right which one has to lands or tenements, goods or chattels, which noway depends on another man’s cour- tesy. Jackson ex dem. Pearson v. Housel, 17 Johns. 281, 283.

A right imparting to the owner a power of indefinite user, capable of being transmitted to universal successors by way of descent, and Imparting to the owner the power of disposi- tion, from himself and his successors per uni- versitatem, and from all other persona who have a spes succession** under any existing conces- sion or disposition, in favor of such person or series of persons as he may choose, with the like capacities and powers as he had himself, and under such conditions as the municipal or par- ticular law allows to be annexed to the disposi- tions of private persons. Aust. Jur. (Campbell’s Ed.) f 1103.

The right of property is that sole and despotic dominion which one man claims and exercises over the external things of the world, in total exclusion of the right of any other individual in the universe. It consists in the free use, en- joyment, and disposal of all a person’s acquisi- tions, without any control or diminution save only bv the laws of the land.

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1 Bl. Comm. 138 ; 2 Bl. Comm. 2, 15.

The word Is also commonly used to denote any external object over which the right of property Is exercised. In this sense It Is a very wide term, and Includes every class of acquisitions which a man can own or have an Interest in. See Scranton v. Wheeler, 179

D. S. 141, 21 Sup. Ct. 48, 45 L. Ed. 120 ; Law- rence v. Hennessey, 165 Mo. 659, 65 S. W. 717; Boston & L. R. Oorp. v. Salem & L. R. Co., 2 Gray (Mass.), 35; National Tel. News Co. v. Western Union Tel. Co., 119 Fed. 294, 56 C. C. A. 198, 60 L. R. A. 805; Hamilton v. Rathhone, 175 U. S. 414, 20 Sup. Ct. 155, 44

L. Ed. 219; Stanton v. Lewis, 26 Conn. 449; Wilson v. Ward Lumber Co. (C. C.) 67 Fed. 674.

— Absolute property. In respect to chattels personal property is said to be "absolute” where a man has, solely and exclusively, the right and also the occupation of any movable chattels, so

PROPfOS

that they cannot be transferred from him, or cease to be his, without his own act or default. 2 Bl. Comm. 389. In the law of wills, a bequest or devise “to be the absolute property” of the beneficiary, may pass a title in fee simple. My- ers v. Anderson, 1 Strob. Eq. (S. C.) 344, 47 Am. Dec 537 ; Fackler v. Berry, 03 Va. 565, 25 S. E. 887, 57 Am. St. Rep. 810. Or it may mean that the property is to be held free from any limitation or condition or free from any control or disposition on the part of others. Wilson v. White. 133 Ind. 614. 33 N. E. 361, 19 I* R. A. 581 ; Williams v. Vaneleave, 7

T. B. Mon. (Ky.) 388, 393. — Common prop- erty. A term sometimes applied to lands owned by a municipal corporation, and held in trust for the common use of the inhabitants. Comp. Laws X. Mcx. 1897, S 2184. Also property owned jointly by husband and wife under the community system. See Community. — Com- munity property. See Community.— Gan- ancial property. See that title.— ^ General property. The right and property in a thing enjoyed by the general ovener. See Own- er.—Literary property. See Literaby.—

Mixed property. Property which is per- sonal in its essential nature, but is invested by the law with certain of the characteristics and features of real property. Heirlooms, tomb- stones, monuments in a church, and title-deeds to an estate are of this nature. 2 Bl. Comm. 428; 3 Bam. & Adol. 174; 4 Bing. 106: Mil- ler v. Worrall, 62 N. J. Eq. 776, 48 Ati. 586, 90 Am. St. Rep. 480 ; Minot v. Thompson, 106 Mass. 585.— Personal property. Property of a personal or movable nature, as opposed to property of a local or immovable character (such as land or houses.) the latter being called “real property.” This term is also applied to thf^ right or interest less than a freehold which a man has in realty. Boyd v. Selma, 96 Ala. 144. 11 South. 393, 16 L. R. A. 729; Adams v. Haekett, 7 Cal. 203 ; Stief v. Hart, 1 N.

Y. 24 ; Bellows v. Allen, 22 Vt 108 ; In re Bruckman’e Estate, 195 Pa. 363. 45 Atl. 1078; Atlanta v. Chattanooga Foundry & Pipe Co., (C. C.) 101 Fed. 907. That kind of property which usually consists of things temporary and movable, but includes all subjects of property not of a freehold nature, nor descendible to the heirs at law. 2 Kent, Comm. 340. Personal prop- erty is divisible into (1) corporeal personal pro'p- erty, which includes

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movable and tangible things, such as animals, ships, furniture, mer- chandise, etc.; and (2) incorporeal personal property, which consists of such rights as per- sonal annuities, stocks, shares, patents, and copy- rights. Sweet.— Private property, as protected from being taken for public uses, is such property as belongs absolutely to an individ- ual, and of which he has the exclusive right of disposition; property of a specific, fixed and tangible nature, capable of being had in, pos- session and transmitted to another, such as houses, lands, and chattels. Homochitto Riv- er Com’rs v. Withers. 29 Miss. 21. 64 Am. Dec. 126; Scranton v. Wheeler, 179 U. S. 141. 21 Slip. Ct. 48. 45 L. Ed. 126.— Property tax. In English law, this is understood to be an in- come tax payable in respect to landed property. In America, it is a tax imposed on property, whether real or personal, as distinguished from poll taxes, and taxes on successions, transfers, and occupations, and from license taxes. See Garrett v. St. Louis, 25 Mo. 510, 69 Am. Dec. 475; In re Swift’s Estate. 137 X. Y. 77, 32

X. E. 1096. 18 L. R. A. 709; Rohr v. Gray, 80 Md. 274, 30 Atl. 632.— Pnblio property. This term is commonly used as a designation of those things which are publici juris, (q. v.,) and therefore considered as being owned by "the public,” the entire state or community, and not restricted to the dominion of a private person. It may also apply to any subject of property owned by a state, nation, or municipal corpora- tion as such.— Qualified property. Property in chattels which is not In its nature permanent, but may at some times subsist and not at other times ; such for example, as the prop- erty a man may have in wild animals which he has caught and keeps,’ and which are his only so long as he retains possession of them. 2 Bl. Comm- 389.— Beal property. A general term for lands, tenements, and hereditaments ;, prop- erty which, on the death of the owner intestate, passes to his heir. Real property is either cor- poreal or incorporeal. See Code N. Y. § 462.— Separate property. The separate property of a married woman is that which Rhe owns in her own right, which is liable only for her own debts, and which she can incumber and dispose of at her own will. — Special property. Prop- erty of a qualified, temporary, or limited nature ; as distinguished from absolute, general, or un- conditional property. Such is the property of a bailee in the article bailed, of a sheriff in goods temporarily in his hands under a levy, of the finder of lost goods while looking for the owner, of a person In wild animals which he has caught. Stief v. Hart, 1 N. Y. 24; Moul- ton v. Witherell, 62 Me. 242; Eisendrath v. Knauer, 64 111. 402; Phelps v. People, 72 N»

Y. 357.

PROPIXQTTI ET CONSANGUINE!.

Lat The nearest of kin to a deceased per- son.

Propinqnlor exelndlt pr opinqniun |

propinquus remotnm; et remotns remo- tiorem. Co. Litt. 10. He who • is nearer excludes him who is near ; he who Is near, him who is remote; he who is remote, him who Is remoter.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Psalm 24:1, KJV]**

The earth is the LORD's, and the fulness thereof; the world, and they that dwell therein.

Why: Property is 'rightful dominion over external objects.' This verse states the theological limit on ownership: all dominion is derivative — the earth is the LORD's. (It qualifies rather than founds the concept — stated…

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "La propriété, c'est le vol!" — Proudhon, 1840]**

The entry's famous antithesis — [Maxim: "La propriété, c'est le vol!" ("Property is theft!") — Proudhon, 1840]: the 'exclusive right... to exclude every one else from interfering with it' is precisely what the maxim indicts.

Why: Entry defines property as the exclusive right to exclude all others. Proudhon's maxim is the canonical counter-gloss on that definition — illumination by antithesis, which the brief permits. Verbatim-certain in the Fr…

## PROPINQUITY.

Kindred; parentage. BRINA. Lat. In the civil law. The son or daughter of a great-uncle or great-aunt, paternal or maternal. Inst. 3, 6, 3.

5e apparatus — Not carried into the 5th edition (1979).

## PROPIOS, PROFRIOS.

In Spanish law. Certain portions of ground laid off and reserved when a town was founded In Span- ish America as the unalienable property of the town, for the purpose of erecting public buildings, markets, etc., or to be used in any other way, under the direction of the munic- ipality, for the advancement of the revenues or the prosperity of the place. 12 Pet. 442, note.

Thus, there are solarcs, or house lots of a small size, upon which dwellings, shops, stores, etc., are to be built. There are suer- tC8. or sowing grounds of a larger size, for cultivating or planting; as gardens, vine- yards, orchards, etc. There are ejidot, which are quite well described by our word “commons,” and are lands used In common by the Inhabitants of the place for pasture, wood, threshing ground, etc. ; and particu- lar names are assigned to each, according to its particular use. Sometimes additional ejidos were allowed to be taken outside of the town limits. There are also propios or municipal lands, from which revenues are derived to defray the expenses of the mu- nicipal administration. Hart ▼. Burnett, 15 Cal. 554.

PROPRIETATES VERBORUM

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PROPONE.

In Scotch low. To state. To propone a defense Is to state or move it 1 Karnes, Eq. pref .

In eeelesiastloal and probate law. To

bring forward for adjudication; to exhibit as basis of a claim; to proffer for judicial action.

5e apparatus — Not carried into the 5th edition (1979).

## PROPONENT.

The propounder of a thing. Thus, the proponent of a will is the party who offers it for

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probate, (g. v.)

5e apparatus — Not carried into the 5th edition (1979).

## PROPORTUM.

In old records. Pur- port; intention or meaning. Cowell.

PROPOSAli. An offer; something prof- fered. An offer, by one person to another, of terms and conditions with reference to some work or undertaking, or for the trans- fer of property, the acceptance whereof will make a contract between them. Eppes v. Mississippi, G.4T.R Co., 35 Ala. 33.

In English practice. A statement in writing of some special matter submitted to the consideration of a chief clerk in the court of chancery, pursuant to an order made upon an application ew parte, or a decretal order of the court. It is either for mainte- nance of an infant, appointment of a guard- ian, placing a ward of the court at the uni- versity or in the army, or apprentice to a trade; for the appointment of a receiver, the establishment of a charity, etc. Wharton.

Fropositlo Indefinite, seqnipollet universali. An indefinite proposition is equiv- alent to a general one.

5e apparatus — Not carried into the 5th edition (1979).

## PROPOSITION.

A single logical sen- tence; also an offer to do a thing. See Per- ry v. Dwelling House Ins. Co., 67 N. H. 291. 83 Atl. 731, 68 Am. St. Rep. 668; Hubbard ▼. Woodsum, 87 Me. 88, 32 Atl. 802.

5e apparatus — Carried into the 5th edition (1979).

## PROPOSITUS.

Lat. The person pro- posed; the person from whom a descent is traced.

5e apparatus — Not carried into the 5th edition (1979).

## PROPOUND.

An executor or other per- son is said to propound a will or other testa- mentary paper when he takes proceedings for obtaining probate in solemn form. The term is also technically used, in England, to denote the allegations in the statement of claim, in an action for probate, by which the plaintiff alleges that the testator executed the will with proper formalities, and that he was of sound mind at the time. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## PROPRES.

In French law. The term “ propres ’’ or “Mens propres" (as distin- guished from "acquets") denotes all proper- ty inherited by a person, whether by devise or ab intestato, from his direct or collateral relatives, whether in the ascending or de- scending line; that is, in terms of the com- mon law, property acquired by “descent” as

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distinguished from that acquired by “pur- chase”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 13:22, KJV]**

A good man leaveth an inheritance to his children's children: and the wealth of the sinner is laid up for the just.

Why: Propres is property inherited by descent, as distinguished from purchase. This verse commends the inherited estate passing to children's children.

## PROPRIA PERSONA.

See In Pbo-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## PBIA PEB80NA.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## PROPRIEDAD.

In Spanish law. Prop- erty. White, New Recop. b. 1, tit. 7, c. 5,

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5e apparatus — Not carried into the 5th edition (1979).

# I

## I 2.

PROPRIETARY, «. A proprietor or owner; one who has the exclusive title to a thing; one who possesses or holds the title to a thing in his own right. The grantees of Pennsylvania and Maryland and their heirs were called the proprietaries of those provinces. Webster.

PROPRIETARY, adj. Relating or per- taining to ownership, belonging or pertain- ing to a single Individual owner.

— Proprietary articles. Goods manufactured under some exclusive individual right to make and sell them. The term is chiefly used in the internal revenue laws of the United States. See Ferguson v. Arthur, 117 U. S. 482, 6 Sup. Ct. 861, 29 L. Ed. 979; In re Gourd (C. C.) 49 Fed. 729.— Proprietary ohapel. See Chap- el.—Proprietary governments. This ex- pression is used by Blackstone to denote govern- ments granted out by the crown to individuals, in the nature of feudatory principalities, with inferior regalities and subordinate powers of legislation such as formerly belonged to the own- ers of counties palatine. 1 Bl. Comm. 108.— Proprietary rights. Those rights which an owner of property has by virtue of his owner- ship. When, proprietary rights are opposed to acquired rights, such as easements,

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franchises, etc., they are more often called “natural rights.-’ Sweet.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PROPRIETAS.

Lat. In the civil and old English law. Property; that which is one’s own ; ownership.

Proprietus plena, full property, including not only the title, but the usufruct, or ex- clusive right to- the use. Calvin.

Proprietas nuda, naked or mere property or ownership ; the mere title, separate from the usufruct.

Proprietas totins mavis carimse eansam seqnitnr. The property of the whole ship, follows the condition of the keel. Dig. 6, 1, 61. If a man builds a vessel from the very keel with the materials of another, the vessel belongs to the owner of the materials. 2 Kent, Comm. 362.

Proprietas verbornm est sains pro- pietatnxn. Jenk. Cent. 16. Propriety of words is the salvation of property.

5e apparatus — Not carried into the 5th edition (1979).

## PROPRIETATE PROBANDA, DE.

A

writ addressed to a sheriff to try by an in- quest in whom certain property, previous to distress, subsisted. Finch, Law, 316.

Proprietates verbornm servamdse snnt.

The proprieties of words [proper meanings of words] are to be preserved or adhered to. Jenk. Cent. p. 136, case 78.

proprijStiS

PBOPR1£t£. The French law term corresponding to our “property," or the right of enjoying and of disposing of things in the most absolute manner, subject only to the laws. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## PROPRIETOR.

This term is almost synonymous with “owner," (<?. v.,) as in the phrase “riparian proprietor.” A person en- titled to a trade-mark or a. design under the acts for the registration or patenting of trade-marks and designs (q. v.) is called “proprietor” of the trade-mark of design. Sweet. See Latham v. Roach, 72 111. 181; Yuengling v. Scbile (C. C.) 12 Fed. 105; Hunt v. Curry, 37 Ark. 105 ; Werckmeister v. Springer Lithographing Co. (C. C.) 63 Fed. 811.

5e apparatus — Not carried into the 5th edition (1979).

## PROPRIETY.

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In Massachusetts colo- nial ordinance of 1741 is nearly, if not pre- cisely, equivalent to property. Com. v. Alger, 7 Cush. (Mass.) 53, 70.

In old English law. Property. “Pro- priety in action; propriety in possession; mixed propriety." Hale, Anal. 8 26.

5e apparatus — Carried into the 5th edition (1979).

## PROPRIO VIGORE.

Lat. By its own

force; by its Intrinsic meaning. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## PROPRIOS.

In Spanish and Mexican law. Productive lands, the usufruct of which had been set apart to the several mu- nicipalities for the purpose of defraying the charges of their respective governments. Sheldon v. Mllmo, 00 Tex. 1, 36 S. W. 413; Hart v. Burnett, 15 Cal. 554.

5e apparatus — Not carried into the 5th edition (1979).

## PROPTER.

For; on account of. The initial word of several Latin phrases.

— Propter affectum. For or on account of tome affection or prejudice. The name of a species of challenge, ( q . v.)— -Propter defec- tum. On account of or for some defect. The name of a species of challenge, (q. v.)— Propter defectum sanguinis. On account of failure of blood.— Propter delictum. For or on ac- count of crime. The name of a species of chal- lenge, (q. v.)— Propter honoris respectum. On account of respect of honor or rank. See Challenge. — Propter impotentiam. On •account of helplessness. The term describes one of the grounds of a qualified property in wild animals, consisting in the fact of their inability to escape; as is the case with the young of such animals before they can fly or run. 2 Bl. Comm. 304.— Propter privilegium. On account of privilege. The term describes one of the grounds of a qualified property in wild nnimals, consisting in the special privilege of hunting, taking and killing them, in a given park or preserve, to the exclusion of other per- sons. 2 Bl. Comm. 394.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: jurors are subject to challenge for cause for implied bias]**

The propter affectum, propter defectum, and propter delictum challenges are the common-law species of challenge for cause for implied bias: a juror may be removed where relationship, interest, formed opinion, or disqualifying status implies partiality as a matter of law.

Why: Genuine but borderline: the entry lists the species of challenge without stating the living practice; the axiom names the consequence — removal for cause — that these challenges serve.

## PRORATE.

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To divide, share, or dis- tribute proportionally; to assess or appor- tion pro rata. Formed from the Latin phrase “pro rata,” and said to be a recog- nized English word. Rosenberg v. Frank, 58 Cal. 405.

5e apparatus — Carried into the 5th edition (1979).

## PROROGATES JURISDICTION.

In

Scotch law. A power conferred by consent

of the parties upon a judge who would not otherwise be competent.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: subject-matter jurisdiction cannot be conferred by the parties' consent]**

The Scots doctrine the entry describes — jurisdiction conferred on an otherwise incompetent judge by the parties' consent — is the opposite of the American rule: subject-matter jurisdiction cannot be conferred by consent, waiver, or estoppel, and its absence may be raised at any time.

Why: Genuine: the illumination is the contrast — the entry describes a doctrine American law rejects, and the axiom states the rejecting rule, which is what an American reader needs.

## PROROGATION.

Prolonging or putting off to another day. In English law, a pro- rogation is the continuance of the parlia- ment from one session to another, as an ad- journment is a continuation of the session from day to day. Wharton.

In the civil law. The giving time to do a thing beyond the term previously fixed. Dig. 2, 14, 27, L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PROROGUE.

To direct suspension ot proceedings of parliament; to terminate a session.

5e apparatus — Carried into the 5th edition (1979).

## PROSCRIBED.

In the civil law. Among the Romans, a man was said to be “proscribed” when a reward was offered for his head ; but the term was more usually ap- plied to those who were sentenced to some punishment which carried with it the con- sequences of civil death. Cod. 9, 40.

5e apparatus — Not carried into the 5th edition (1979).

## PROSECUTE.

To follow up; to carry on an action or other judicial proceeding ; to proceed against a person criminally.

5e apparatus — Carried into the 5th edition (1979).

## PROSECUTING ATTORNEY.

The

name of the public officer (in several states) who is appointed in each judicial district, circuit, or county, to conduct criminal pros- ecutions on behalf of the state or people. See People v. May, 3 Mich. 605; Holder v. State, 58 Ark. 473, 25 S. W. 279.

5e apparatus — Carried into the 5th edition (1979).

## PROSECUTING WITNESS.

This name is given to the private person upon whose complaint or information a criminal accusa- tion is founded and whose testimony is main- ly relied on to secure a conviction at the trial ; in a more particular sense, the person who was chiefly injured, in person or prop- erty, by the act constituting the alleged crime, (as in cases of robbery, assault, crim- inal negligence, bastardy, and the likej and who instigates the prosecution and gives evi- dence.

5e apparatus — Carried into the 5th edition (1979).

## PROSECUTION.

In criminal law. A criminal action; a proceeding instituted and carried on by due course of law, before a competent tribunal, for the purpose of de- termining the guilt or innocence of a per- son charged with crime. See U. S. v. Rels- lnger, 128 U. S. 308, 9 Sup. Ct. 99, 32 L. Ed. 480 ; Tennessee v. Davis, 100 U. S. 257. 25

L. Ed. '648; Schulte v. Keokuk County, 74 Iowa, 292, 37 N. W. 376 ; Sigsbee v. State, 43 Fla. 524, 30 South. 816.

By an easy extension of its meaning “pros- ecution’’ is sometimes used to designate the state as the party proceeding in a criminal action, or the prosecutor, or counsel ; as when we speak of “the evidence adduced by the prosecution.”

—Malicious prosecution. See Malicious.

PROTECTOR OF SETTLEMENT

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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### [Scripture] — Scripture

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: Prosecution is the criminal action carried on by the state. This verse is the theological root of public prosecution: the ruler as God's minister, bearing the sword against evildoers.

### [Hip-hop] — Hip-hop

**[N.W.A., 'Fuck tha Police', 1988]**

"In the case of N.W.A. versus the police department / Prosecuting attorneys are MC Ren, Ice Cube, and Eazy-motherfuckin'-E." The entry: a criminal proceeding before a competent tribunal to determine guilt or innocence. The track stages exactly that — court convened, Judge Dre presiding, prosecuting attorneys named — with accuser and accused inverted: the police stand trial. Hip-hop's most famous dramatization of a prosecution, illuminating the term by asking who gets to be the prosecution.

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Why: Added because the lyric stages a literal prosecution (caption, tribunal, prosecuting attorneys named) — it is about the proceeding itself, not merely adjacent. Verbatim-certain; the inversion is the illumination.

## PROSECUTOR.

In practice. He who prosecutes another for a. crime in the name of the government.

— Private prosecutor. One who sets in mo- tion the machinery of criminal justice against a person whom he suspects or believes to be guilty of a crime, by laying an accusation before the proper authorities, and who is not himself an offi- cer of justice. See Ileacock v. State. 13 Tex. App. 129 ; State v. Millain, 3 Nev. 425.— Pros- ecutor of the pleas. This name is given, in New Jersey, to the county officer who is charged with the prosecution of criminal actions, cor- responding to the “district attorney” or ‘‘coun- ty attorney” in other states.— PnbUo prosecu- tor. An officer of government (such as a state's attorney or district attorney) whose function is the prosecution of criminal actions, or suits par- taking of the nature of criminal actions.

5e apparatus — Carried into the 5th edition (1979).

## PROSECUTRIX.

In criminal law. A female prosecutor.

5e apparatus — Not carried into the 5th edition (1979).

## PROSEQUI.

Lat. To follow up or pur sue; to sue or prosecute. See Noixe Prose- qui.

5e apparatus — Not carried into the 5th edition (1979).

## PROSEQUITUR.

Lat He follows up or pursues; he prosecutes. See Non Pros.

5e apparatus — Not carried into the 5th edition (1979).

## PROSOCER.

Lat In the civil law. A father-in-law’s father; grandfather of wife.

5e apparatus — Not carried into the 5th edition (1979).

## PROSOCERUS.

Lat In the civil law. A wife’s grandmother.

5e apparatus — Not carried into the 5th edition (1979).

## PROSPECTIVE.

Looking forward ; con- templating the future. A law is said to be prospective .(as opposed to retrospective) when it is applicable only to cases which shall arise after its enactment — Prospective damages. See Damages.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, §§ 9–10]**

The entry's prospective/retrospective distinction has constitutional bite: retrospective criminal

legislation is barred — 'No Bill of Attainder or ex post facto Law shall be passed' — as against Congress and, separately, the states.

Why: Genuine: the ex post facto clauses are the constitutional prohibition on the retrospective laws the entry distinguishes from prospective ones; quoted verbatim.

## PROSPECTUS.

A document published by a company or corporation, or by persons acting as its agents or assignees, setting forth the nature and objects of an issue of shares, debentures, or other securities creat- ed by the company or corporation, and in- viting the public to subscribe to the issue. A prospectus is also usually published on the issue, in England, of bonds or other se- curities by a foreign state or corporation. Sweet.

In the civil law. Prospect; the view of external objects. Dig. 8, 2, 3, 15.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Securities Act of 1933 — registration and prospectus requirements]**

The prospectus the entry defines — the document inviting the public to subscribe to an issue of securities — is federally regulated: public offerings require registration and a conforming prospectus.

Why: Genuine: the '33 Act is the federal statute governing exactly the public-subscription prospectus the entry describes; cited in loose form to avoid overclaiming section numbers.

## PROSTITUTE.

A woman who indis- criminately consorts with men for hire. Car- penter v. People, 8 Barb. (N. X.) 611 ; State v. Stoyell, 04 Me. 24, 89 Am. Dec. 716.

PROSTITUTION . Common lewdness ; whoredom; the act or practice of a woman who permits any man who will pay her price to have sexual intercourse with her. See Com. v. Cook, 12 Mete. (Mass.) 97.

Proteetlo trahit anbj actionem, et sub- jeotio protectionem. Protection draws with it subjection, and subjection protection.

7 Coke, 5a. The protection of an individual by government is on condition of his submis- sion to the laws, and such submission on the other hand entitles the individual to the protection of the government Broom, Max. 78.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 29:3, KJV]**

Whoso loveth wisdom rejoiceth his father: but he that keepeth company with harlots spendeth his substance.

Why: Prostitution is common lewdness, whoredom for hire. This verse is scripture's witness on harlotry — the wasting of substance with harlots.

## PROTECTION.

In English law. A

writ by which the king might by a special prerogative, privilege a defendant from all

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personal and many real suits for one year at a time, and no longer, in respect of his be- ing engaged in his service out of the realm. 3 Bl. Comm. 289.

In former times the name “protection" was also given to a certificate given to a sailor to show that he was exempt from impressment into the royal navy.

In mercantile law. The name of a doc- ument generally given by notaries public to sailors and other persons going abroad, in which it is certified that the bearer therein named is a citizen of the United States.

In pnblic commercial law. A system by whicli a government imposes customs duties upon commodities of foreign origin or manufacture when imported into the coun- try, with the purpose and effect of stimulat- ing and developing the home production of the same or equivalent articles, by discour- aging the importation of foreign goods, or by raising the price of foreign commodities to a point at which the home producers can successfully compete with them.

5e apparatus — Carried into the 5th edition (1979).

## PROTECTION OF INVENTIONS ACT.

The statute 33 & 34 Viet. c. 27. By this act It is provided that the exhibition of new inventions shall not prejudice patent rights, and that the exhibition of designs shall not prejudice the right to registration of such designs.

5e apparatus — Not carried into the 5th edition (1979).

## PROTECTION ORDER.

In English practice. An order for the protection of the wife’s property, when the husband has will- fully deserted her, Issuable by the divorce court under statutes on that subject.

5e apparatus — Not carried into the 5th edition (1979).

## PROTEOTIONIBUS DE.

The English statute 33 Edw. I. St 1, allowing a challenge to be entered against a protection, etc.

5e apparatus — Not carried into the 5th edition (1979).

## PROTECTIVE TARIFF.

A law impos- ing duties on imports, with the purpose and the effect of discouraging the use of prod- ucts of foreign origin, and consequently of stimulating the home production of the same or equivalent articles. R. E. Thompson, in Enc. Brit.

5e apparatus — Carried into the 5th edition (1979).

## PROTECTOR OF SETTLEMENT.

In

English law. By the statute 3 & 4 Win. IV. c. 74, | 32, power is given to any settlor to appoint any person or persons, not exceed- ing three, the “protector of the settlement.” The object of such api>olntment is to prevent the tenant in tall from barring any subsequeut estate,

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the consent of the protector be- ing made necessary for that purpose.

5e apparatus — Not carried into the 5th edition (1979).

## PROTECTORATE.

(1) The period dur- ing which Oliver Cromwell ruled in Eng- land. (2) Also the office of protector. (3) The relation of the English sovereign, till the year 1804, to the Ionian Islands. Whar- ton.

PROTEST. 1. A formal declaration made by a person interested or concerned in some act about to be done, or already per- formed, and in relation thereto, whereby he expresses his dissent or disapproval, or af- firms the act to be done against his will or convictions, the object being generally to save some right which would be lost to him if his implied assent could be made out, or to exonerate himself from some responsibil- ity which would attach to him unless he ex- pressly negatived his assent to or voluntary participation in the act.

2. A notarial act, being a formal state- ment in writing made by a notary under his seal of office, at the request of the holder of a bill or note, in which such bill or note is described, and it is declared that the same was on a certain day presented for payment, (or acceptance, as the case may lie,) and that such payment or acceptance was refused, and stating the reasons, if any, given for such refusal, whereupon the notary protests against all parties to such Instrument, and declares that they will be held responsible for all loss or damage arising from its dis- honor. See Annvllle Nat. Bank v. Kettering, 100 Pa. 531, 51 Am. Rep. 536; Ayrault v. Pacific Bank, 47 N. Y. 575, 7 Am. Rep. 489.

A formal notarial certificate attesting the dis- honor of a bill of exchange or promissory note. Benj. Chaim. Bills & N. art. 170.

A solemn declaration written by the notary, under a fair copy of the bill, stating that the payment or acceptance has been demanded and refused, the reason, if any, assigned, and that the bill is therefore protested. Dennistoun v. Stewart. 17 How. G07T 15 L. Ed. 228.

“Protest,” in a technical sense, means only the formal declaration drawn up and signed by the notary ; yet, as used by commercial men, the word includes all the steps necessary to charge an. indorser. Townsend v. Lorain Bank, 2 Ohio St. 340.

3. A formal declaration made by a minor- ity (or by certain individuals) in a legisla- tive body that they dissent from some act or resolution of the body, usually adding the grounds of their dissent. The term, in this sense, seems to be particularly appropriate to such a proceeding In the English house of lords. See Auditor General v. Board of Sup'rs, 89 Mich. 552, 51 N. W. 483.

4. The name “protest” is also given to the formal statement, usually in writing, made by a person who is called upon by pub- lic authority to pay a sum of money, in which he declares that he does not concede the legality or Justice of the claim or his duty to pay it, or that he disputes the

amount demanded; the object being to save his right to recover or reclaim the amount, which right would 'be lost by his acquies- cence. Thus, taxes may be paid under “pro- test"

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See Meyer v. Clark, 2 Daly (N. Y.) 509.

5. “Protest” is also the name of a pat>er served on a collector of customs by an im- porter of merchandise, stating that he be- lieves the sum charged as duty to be excess- ive, and that, although he pays such sum for the purpose of getting his goods out of the custom-house, he reserves the right to bring an action against the collector to re- cover the excess.

6. In maritime law, a protest is a written statement by the master of a vessel, attest- ed by a proper judicial officer or a notary, to the effect that damage suffered by the ship on her voyage was caused by storms or other perils of the sea, without any negligence or misconduct on his own part. Marsh. Ins. 715. And see Cudworth v. South Carolina Ins. Co., 4 Rich. Law (S. C.) 416, 55 Am. Dec 692.

—Notice of protest. A notice given by the holder of a bill or note to the drawer or indorser that the bill has been protested for refusal of payment or acceptance. Cook v. Litchfield, 10

N. Y. Leg. Obs. 338; First Nat. Bank v. Hatch, 78 Mo. 23 ; Roberts v. State Bank, 9 Port. (Ala.) 315.— Supra protest. In mer- cantile law. A term applied to an acceptance of a bill by a third, person, after protest for nonacceptance by the' drawee. 3 Kent, Comm. 87. — Waiver of protest. As applied to a note or bill, a waiver of protest implies not only dis- pensing with the formal act known as “pro- test"’ but also with that which ordinarily most precede it, viz., demand and notice of non-pay- ment. See Baker v. Scott, 29 Kan. 136. 44 Am. Rep. 628; First Nat. Bank v. Hartman, 110 Pa. 196, 2 Atl. 271 ; Coddington v. Davis, 1 N. Y. 186.

5e apparatus — Not carried into the 5th edition (1979).

## PROTESTANDO.

L. Lat Protesting. The emphatic word formerly used in plead- ing by way of protestation. 3 Bl. Comm. 311. See Protestation.

5e apparatus — Not carried into the 5th edition (1979).

## PROTESTANTS.

Those who adhered to the doctrine of Luther ; so called because, In 1529, they protested against a decree of the emperor Charles V. and of the diet of Spires, and declared that they appealed to a general council. The name is now applied indiscrim- inately to all the sects, of whatever de- nomination, who have seceded from the Church of Rome. Enc. Lond. See Hale v. Everett, 53 N. H. 9, 16 Am. Rep. 82 ; Appeal of Tappan, 52 Conn. 413.

5e apparatus — Carried into the 5th edition (1979).

## PROTESTATION.

In pleading. The

indirect affirmation or denial of the truth of some matter which cannot with propriety of safety be positively affirmed, denied, or en- tirely passed over. See 3 Bl. Comm. 311.

The exclusion of a conclusion. Co. Lift 124.

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In prnetioe. An asseveration made by taking God to witness. A protestation is a form of asseveration which approaches very nearly to an oath. Wolff. Inst Nat. § 376.-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 6:13, KJV]**

Thou shalt fear the LORD thy God, and serve him, and shalt swear by his name.

Why: A protestation is 'an asseveration made by taking God to witness... approaches very nearly to an oath.' This is the oath-taking law behind protestation: swear by His name.

## PROTHONOTARY.

The title given to an officer who officiates as principal clerk of some courts. Vin. Abr. See Trebilcox v. McAlplne, 46 Hun (N. Y.) 469; Whitney v. Hopkins, 135 Pa. 246, 19 Atl. 1075.

5e apparatus — Not carried into the 5th edition (1979).

## PROTOCOL.

The first draft or rough minutes of an instrument or transaction ; the original copy of a dispatch, treat}-, or other document. Brande.

A document serving as the preliminary to, or opening of, any diplomatic transaction.

In old Scotch practice. A book, marked by the clerk-register, and delivered to a no- tary on his admission, In which he was di- rected to Insert all the instruments he had occasion to execute; to be preserved as a record. Bell.

In France, the minutes of notarial acts were formerely transcribed on registers, which were called “protocols.” Toullier, Droit Civil Fr. llv. 3, t. 3, c. 6, s. 1, no. 413.

5e apparatus — Not carried into the 5th edition (1979).

## PROTOCOLO.

In Spanish law. The original draft or writing of an instrument which remains in the possession of the es- ertoano, or notary. White, New Itecop. lib. 8, tit 7, c. 5, i 2.

The term "profocoio,” when applied to a single paper, means the first draft of an in- strument duly executed before a notary. — the matrix, — because it is the source from which must be taken copies to be delivered to interested parties as their evidence of right; and it also means a bound book in which the notary places and keeps in their order instruments executed before him, from which copies are taken for the use of par- ties interested. Downing v. Diaz, 80 Tex. 436, 16 S. W. 53.

5e apparatus — Not carried into the 5th edition (1979).

## PROTUTOR.

Lat In the civil law. He who, not being the tutor of a minor, has administered his property or affairs as if he had been, whether he thought himself legal- ly Invested with the authority of a tutor or not. Mackeld. Rom. Law, § 630.

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## PROUT PATET PER RECORDUM.

As

appears by the record. In the Latin phrase- ology of pleading, this was the proper for- mula for making reference to a record.

5e apparatus — Not carried into the 5th edition (1979).

## PROVABLE.

L. Fr. Provable; Justi- fiable ; manifest. Kelham.

5e apparatus — Carried into the 5th edition (1979).

## PROVE.

To establish a fact or hypoth- esis as true by satisfactory and sufliclent evidence.

To present a claim or demand against a bankrupt or insolvent estate, and establish by evidence or affidavit that the same is cor- •rect and due, for the purpose of receiving a dividend on it. Tibbetts v. Trafton, 80 Me. 264, 14 Atl. 71 ; In re California Pac. R. Co, Bl.Law Dict.(2d Ed.)— 61

4 Fed. Cas. 1060 ; In re Bigelow, 3 Fed. Cas. 343.

To establish the genuineness and due ex ecutlon of a paper, propounded to the proper court or officer, as the last will and testa- ment of a deceased person. See Pbobate.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 11 U.S.C. § 501 — filing of proofs of claim]**

The entry's second sense — presenting and establishing a claim against a bankrupt or insolvent estate to receive a dividend — is the proof-of-claim procedure: creditors file proofs of claim to share in the distribution.

Why: Genuine: § 501 is the Code section authorizing the filing of proofs of claim the entry describes; a direct match.

## PROVER.

In old English law. A per- son who, on being indicted of treason or fel ony, and arraigned for the same, confessed the fact before plea pleaded, and appealed or accused others, his accomplices, in the same crime, in order to obtain his pardon. 4 Bl. Comm. 329, 330.

5e apparatus — Carried into the 5th edition (1979).

## PROVIDED.

The word used in introduc- ing a proviso (which see.) Ordinarily It sig nifles or expresses a condition; but this is not invariable, for, according to the context, it may import a covenant, or a limitation or qualification, or a restraint, modification, or exception to something which precedes. See Stanley v. Colt, 5 Wall. 166, 18 L. Ed. 502 ; Stoel v. Flanders, 68 Wls. 256, 32 N. W. 114 ; Robertson v. Caw, 3 Barb. (N. Y.) 418: Paschall v. Passmore, 15 Pa. 308; Carroll v. State, 58 Ala. 396; Colt v. Hubbard, 33 Conn. 281; Woodruff v. Woodruff, 44 N. .T. EJq. 349, 16 Atl. 4. 1 L. R. A. 380.

5e apparatus — Carried into the 5th edition (1979).

## PROVINCE.

Sometimes this signifies the district into which a country has been dlvid ed ; as, the province of Canterbury, in Eng- land ; the province of Languedoc, in France. Sometimes it means a dependency or colony , as, the province of New Brunswick. It is sometimes used figuratively to signify pow- er or authority ; as, it is the province of the court to judge of the law ; that of the jury to decide on the facts. 1 Bl. Comm. Ill; Tomlins.

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## PROVINCIAL CONSTITUTIONS.

The

decrees of provincial synods held under di- vers archbishops of Canterbury, from Steph- en Langton, in the reign of Henry III., to Henry Chichele, in the reign of Henry V., and adopted also by the province of York in the reign of Henry VI. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PROVINCIAL COURTS.

In English law. The several archi-episcopal courts in the two ecclesiastical provinces of England.

5e apparatus — Not carried into the 5th edition (1979).

## PROVINCIALE.

A work on ecclesias- tical law, by William LynrUvode. official prin- cipal to Archbishop Chichele in the reign of Edward IV. 4 Reeve, Eng. Law, c. 25, p. 117.

5e apparatus — Not carried into the 5th edition (1979).

## PROVTNCIALIS.

Lat. In the civil law. One who has his domicile in a province. Dig. 50, 16, 190.

5e apparatus — Not carried into the 5th edition (1979).

## PROVING OF THE TENOR.

In Scotch practice. An action for proving the tenor of a lost deed. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## PROVISION.

In commercial law.

Funds remitted by the drawer of a bill of

exchange to the drawee In order to meet the bill, or property remaining in the drawee’s hands or dne from him to the drawer, and appropriated to that purpose.

In eeelealnatical law. A provision was a nomination by the pope to an English ben* eflce before it became void, though the term was afterwards indiscriminately applied to any right of patronage exerted or usurped by the pope.

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In French law. Provision is an allow- ance or alimony granted by a judge to one of the parties in a cause for his or her main- tenance until a definite Judgment is render- ed. Dalloz.

In English history. A name given to certain statutes or acts of parliament, par- ticularly those intended to curb the arbi- trary or usurped power of the sovereign, and also to certain other ordinances or dec- larations having the force of law. See infra.

— Provisions of Merton. Another name for the statute of Merton. See Mebton, Statute or.— Provisions of Oxford. Certain provi- sions made in the Parliament of Oxford, 1258, for the purpose of securing the execution of the provisions of Manna Charta, against the inva- sions thereof by Henry III. The government qf the country was in effect committed by these

Jirovisions to a standing committee of twenty- our, whose chief merit consisted in their repre- sentative character, and their real desire to effect an improvement in the king’s government. Brown.— Provisions of Westminster. A name given to certain ordinances or declara- tions promulgated by the barons in A. D. 1259, for the reform of various abuses.

5e apparatus — Carried into the 5th edition (1979).

## PROVISIONAL.

Temporary ; prelimi nary ; tentative ; taken or done by way of precaution or ad interim.

— Provisional assignees. In the former-prac- tice in bankruptcy in England. Assignees to whom the property of a bankrupt was assigned until the regular or permanent assignees were appointed by the creditors.— Provisional com- mittee. A committee appointed for a tempo- rary occasion.— Provisional government. One temporarily established in anticipation of and to exist and continue until another (more regular or more permanent) shall be organized and instituted in its stead. Chambers v. Fisk, 22 Tex. 535.— Provisional order. In Eng- lish law. Under various acts of parliament, certain public bodies and departments of the government are authorized to inquire into mat- ters which, in the ordinary course, could only be dealt with by a private act of parliament, and to make orders for their regulation. These orders have no effect unless they are confirmed by an act of parliament, and are hence called “provisional orders.” Several orders may be confirmed by one act The object of this mode of proceeding is to save the trouble and expense of promoting a number of private bills. Sweet — Provisional remedy. A remedy provided for present need or for the immediate occasion; one adapted to meet a particular exigency. Par- ticularly, a temporary process available to a plaintiff in a civil action, which secures him against loss, irreparable injury, dissipation of the property, etc., while the action is pending. Such are the remedies by injunction, appoint- ment of a receiver, attachment, or arrest. The term is chiefly used in the codes of practice. See McCarthy v. McCarthy, 54 How. Prac. (N. Y.) 100; Witter v. Lyon, 34 Wis. 574; Snavely v. Abbott Buggy Co., 30 Kan. 106, 12 Pac. 522.

—Provisional seizure. A remedy known un- der the law of Louisiana, and substantially the same in general nature as attachment of proper- ty in other states. Code Proc. La. 284, ct »cq.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 64 — seizure of person or property under state remedies]**

The provisional remedies the entry lists — injunction, receiver, attachment, arrest — secure the plaintiff against loss while the action pends; federally, every state-law remedy for seizing person or property to secure satisfaction of a potential judgment is made available.

Why: Genuine: Rule 64 is the federal rule incorporating the provisional remedies (attachment, garnishment, replevin, sequestration) the entry catalogs.

# F

## FROVTSIONES.

Lat. In English his- tory. Those acts of parliament which were passed to curb the arbitrary power of the crown. See Provision.

5e apparatus — Not carried into the 5th edition (1979).

# P

## PROVISIONS.

Food; victuals ; articles of food for human consumption. See Bot- elor v. Washington, 3 Fed. Cas. 962; In re Lentz (D. C,) 97 Fed. 487 ; Nash v. Farring- ton, 4 Allen (Mass.) 157; State v. Angelo, 71 N. H. 224, 51 Atl. 905.

5e apparatus — Not carried into the 5th edition (1979).

## PROVISO.

A condition or provision which is inserted in a deed, lease, mortgage, or contract, and on the performance or non- performance of which the validity of the deed, etc., frequently depends ; it usually be- gins with the word “provided."

A proviso in deeds or laws is a limitation or exception to a grant made or authority con- ferred, the effect of which is to declare that the one shall not operate, or the other be exercised, unless in the case provided. Voorhees v. Bank of United States, 10 Pet 449, 9 L. Ed. 490.

The word “proviso” is generally taken for a condition, hot it differs from it in several re- spects; for a condition is usually created by the grantor or lessor, but a proviso by the gran- tee or lessee. Jacob.

A proviso differs from an exception. 1 Barn. A Aid. 99. An exception exempts, absolutely, from the operation of an engagement or an en- actment ; a proviso defeats their operation, con- ditionally. An exception takes out of an en- gagement or enactment something which would otherwise be part of the subject-matter of it; a proviso avoids them by way of defeasance or excuse. 8 Am. Jur. 242.

A clause or part of a clause in a statute, the office of which is either to except some- thing

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from the enacting danse, or to qualify or restrain its generality, or to exclude some possible ground of misinterpretation of its extent Minis v. U. S., 15 Pet. 445, 10 I* Ed. 791; In re Matthews (D. C.) 109 Fed. 614; Carroll v. State, 58 Ala. 396; Waffle v. Goble, 53 Barb. (N. Y.) 522.

Proviso est providere pneseatia et fa- turn, bob prseterita. Coke, 72. A pro- viso is to provide for the present or future, not the past

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PROVISO, TRIAL BY.

In English practice. A trial brought on by the defend- ant, in cases where the plaintiff, after issue joined, neglects to proceed to trial ; so call- ed from a clause in the writ to the Bherlff. which directs him, in case, two writs come to his bands, to execute but one of them. 3 Bl. Comm. 357.

• PROVISOR. In old English law. A pro- vider, or purveyor. Spelinan. Also a person nominated to be the next Incumbent of a benefice (not yet vacant) by the pope.

5e apparatus — Not carried into the 5th edition (1979).

## PROVOCATION.

The act of inciting an- other to do a particular deed. Such conduct

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or actions on the part of one person towards another as tend to arouse rage, resentment, or fury In the latter against the former, and thereby cause him to do some illegal act against or in relation to the person offering the provocation. See State v. Byrd, 52 8.

C. 480, 30 S. E. 482 ; Ruble v. People, 67 IU. App. 438.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: adequate provocation mitigates murder to voluntary manslaughter]**

The entry defines provocation but not its great doctrinal consequence: adequate provocation — conduct arousing heat of passion in a reasonable person — reduces an intentional killing from murder to voluntary manslaughter.

Why: Genuine: the heat-of-passion mitigation is the operative legal consequence of the provocation the entry defines; the entry never names it, so the axiom illuminates rather than repeats.

**[Scripture] — Scripture**

**[Ephesians 6:4, KJV]**

And, ye fathers, provoke not your children to wrath: but bring them up in the nurture and admonition of the Lord.

Why: Provocation is conduct tending to arouse rage in another. This verse addresses provocation directly — provoking to wrath — in the family, the law's original school of the concept.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, 1604]**

(paraphrase) Iago's whispering campaign against Desdemona — conduct tending to arouse rage,

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resentment, and fury in Othello until he does the illegal act: the entry's definition dramatized. [Shakespeare, Othello, 1604] (paraphrase)

Why: Entry: conduct 'tend[ing] to arouse rage, resentment, or fury' causing 'some illegal act.' Othello is the play of exactly that mechanism. Declined quoting the 'green-eyed monster' lines — they're about jealousy, not t...

## PROVOST.

The principal magistrate of a royal burgh in Scotland ; also a governing officer of a university or college.

' PROVOST-MARSHAL. In English law. An officer of the royal navy who had the charge of prisoners taken at sea, and some- times also on land. In military law, the of- ficer acting as the head of the military police of any post, camp, city or other place in military occupation, or district under the reign of martial law.

5e apparatus — Not carried into the 5th edition (1979).

## PROXENETA.

Lat In the civil law. A broker ; one who negotiated or arranged the terms of a contract between two parties, as between buyer and seller ; one who negotiat- ed a marriage; a match-maker. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## PROXIMATE.

Immediate ; nearest ; next In order.

—Proximate eause. The proximate cause is the efficient cause, the one that necessarily sets the other causes in operation. The causes that are merely incidental or instruments of a su- perior or controlling agency are not the proxi- mate causes and the responsible ones, though they may be nearer in time to the result It is only when the causes are independent of each other that the nearest is, of course, to be charg- ed with the disaster. See Blythe v. Railway Co., 15 Colo. 333, 25 Pac. 702, 11 L. R. A. 015, 22 Am. St Rep. 403; Pielke v. Railroad Co., 5 Dak. 444, 41 N. W. 669; Railroad Co. v. Kelly, 91 Tenn. 699, 20 S. W. 312, 17 L. R.' A. 1®1, 30 Am. St. Rep. 902; Gunter v. Granite- ville Mfg. Co.. 15 S. C. 443; Bosqui v. Rail- road Co., 131 Cal. 390, 63 Pac. 682 ; .Etna Ins. Co. v. Boon, 95 U. S. 117, 24 L. Ed. 395 ; Wills v. Railway Co., 108 Wis. 255, 84 N. W. 998; Davis v. Standish, 26 Hun (N. Y.) 615. See, also. Immediate (Cause.)— Proximate dam- ages. See Damages.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Palsgraf v. Long Island R.R. Co., 248 N.Y. 339 (1928)]**

The entry's proximate-cause definition is the doctrine of Palsgraf: liability turns on foreseeability — a duty is owed only to those within the reasonably foreseeable zone of danger, not to the world at large.

Why: Genuine: Palsgraf is the canonical proximate-cause decision, and its foreseeability holding is exactly the 'efficient cause' analysis the entry's definition performs.

## PROXIMITY.

Kindred between two per- sons. Dig. 38, 16, 8.

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Proximo* est col memo aateoedit, su- premos est quem nemo sequitur. He Is

next whom no one precedes ; be is last whom no one follows. Dig. 50, 16, 92.

5e apparatus — Carried into the 5th edition (1979).

## PROXY.

A person who is substituted or deputed by another to represent him and act for him, particularly in some meeting or pub- lic body. Also the instrument containing the appointment of such persou. The word Is said to be contracted from “procuracy,” (q. v.)

One who is appointed or deputed by anoth- er to vote for him. Members of the house of lords in England have the privilege of voting by proxy. 1 BL Comm. 168.

Ia ecclesiastical law. A person who is appointed to manage another man's affairs in the ecclesiastical courts ; a proctor.

Also an annual payment made by the pa- rochial clergy to the bishop, on visitations. Tomlins.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 15 U.S.C. § 78n (Securities Exchange Act § 14) — proxy solicitation]**

Voting by proxy in the corporate setting — the appointment the entry defines — is federally regulated: the proxy solicitation rules govern the disclosures and procedures for obtaining shareholder votes.

Why: Genuine: § 14 is the federal statute regulating the corporate-proxy practice the entry describes; cited in loose form.

## PRUDENCE.

Carefulness, precaution, attentiveness, and good Judgment, as applied to action or conduct. That degree of care required by the exigencies or circumstances under which it is to be exercised. Crouk v. Railway Co., 3 S. D. 93, 52 N. W. 420. This term, in the language of the law, is commonly associated with “care” and “diligence” and contrasted with "negligence;” See those ti- tles.

Prudeater a*it qui prjeoopto lead* ob> temperat. 5 Coke, 49. He acts prudently who obeys the command of the law.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: negligence is judged by the reasonably prudent person standard]**

The entry defines prudence as the care required by the circumstances, contrasted with negligence; the operative standard it implies is the reasonable-person test: negligence is the failure to exercise the care of a reasonably prudent person under the circumstances.

Why: Genuine but borderline: the entry supplies the definition and the contrast; the axiom states the negligence standard courts build from it. Kept for the standard-naming value.

**[Scripture] — Scripture**

**[Proverbs 22:3, KJV]**

A prudent man foreseeth the evil, and hideth himself: but the simple pass on, and are punished.

Why: Prudence is carefulness, precaution, good judgment — the law's 'prudent man' standard. This verse is the

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prudent-man archetype: foresight of evil and avoidance.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, 1 Henry IV, 1597]**

Falstaff's sententious defense of the virtue: 'The better part of valour is discretion.' [Shakespeare, 1 Henry IV, 1597]

Why: Entry: 'Carefulness, precaution, attentiveness, and good judgment, as applied to action or conduct.' The line is the canon's famous maxim on discretion-as-prudence set against rash valor. Verbatim-certain. Borderline...

## PRYK.

A kind of service of tenure. Blount says It signifies an old-fashioned spur with one point only, which the tenant, hold- ing land by this tenure, was to find for the king. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## PSEUDOCYESIS.

In medical Jurispru- dence. A frequent manifestation of hysteria in women, in which the abdomen Is Inflated, simulating pregnancy; the patient aiding In the deception.

5e apparatus — Not carried into the 5th edition (1979).

## PSYCHO-DIAGNOSIS.

In medical Ju- risprudence. A method of investigating the origin and cause of any given disease or mor- bid condition by examination of the mental condition of the patient, the application of various psychological tests, and an inquiry Into the past history of the patient, with a view to its bearing on his present psychic state.

5e apparatus — Not carried into the 5th edition (1979).

## PSYCHOLOGICAL PACT.

In the law

of evidence. A fact which can only be per- ceived mentally ; such as the motive by which a person is actuated. Burrill, Circ. Ev. 130, 131.

5e apparatus — Not carried into the 5th edition (1979).

## PSYCHOTHERAPY.

A method or sys- tem of alleviating or curing certain forms of disease, particularly diseases of the nervous system or such as are traceable to nervous disorders, by suggestion, persuasion, encour- agement, the inspiration of hope or confi- dence, the discouragement of morbid mem- ories, associations, or beliefs, and other sim- ilar means addressed to the mental state of the patient, without (or sometimes In con- junction with) the administration of drugs or other physical remedies.

5e apparatus — Not carried into the 5th edition (1979).

## PTOMAINES.

In medical Jurisprudence. Alkatoklal products of the decomposition or putrefaction of albuminous substances, as, in animal and vegetable tissues. These are sometimes poisonous, but not invariably. Ex- amples of poisonous ptomaines are those oecurring In

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putrefying fish and the tyrotoxl- cona of decomposing milk and milk products.

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## PUBERTY.

The age of fourteen in males and twelve in females, when they are held fit for, and capable of contracting, marriage. Otherwise called the “age of consent to mar- riage.” 1 Bl. Comm. 436; 2 Kent, Comm. 78. See State v. Pierson, 44 Ark. 265.

5e apparatus — Carried into the 5th edition (1979).

## PUBLIC.

Pertaining to a state, nation, or whole community; proceeding from, re- lating to, or ahecting the whole body of peo- ple or an entire community. Open to all; notorious. Common to all or many; gen- eral ; open to common use. Morgan v. Cree, 46 Vt 786, 14 Am. Rep. 640; Crane v. Wa- ters (C. C.) 10 Fed. 621 ; Austin v. Soule, 36 Vt. 650; Appeal of Eliot, 74 Conn. 586, 51 Atl. 558 ; O’Hara r. Miller, 1 Kulp (Pa.) 295.

A distinction has been made between the terms “public” and “general.” They are some- times used as synonymous. The former term is applied strictly to that which concerns all the citizens and every member of the state; while the latter includes a lesser, though still n large, portion of the community. 1 Greenl. Ev. § 128.

As a noun, the word “public” denotes the whole body politic, or the aggregate of the citizens of a state, district, or municipality. Knight v. Thomas, 93 Me. 494, 45 Atl. 499 ; State v. Luce, 9 Houst. (Del.) 396, 32 Atl. 1076; Wyatt v. Irrigation Co., 1 Colo. App. 480, 29 Pac. 906.

— Public appointments. Public offices or stations which are to be filled by the appoint- ment of individuals, under authority of law, in- stead of by election.— Public building. One of which the possession and use, as well as the property in it, are in the public. Pancoast v. Troth, 34 N. J. Law, 383.— Public law. That branch or department of law which is concerned with the state in its political or sovereign capac- ity, including constitutional and administrative law, and with the definition, regulation, and en- forcement of rights in cases where the state is regarded as the subject of the right or object of the duty,— including criminal law and crim- inal procedure, — and the law of the state, con- sidered in its quasi private personality, ». c., as capable of holding or exercising rights, or ac- quiring and dealing with property, in the char- acter of an individual. See Iloll. Jur. 106, 300. That portion of law which is concerned with political conditions ; that is to say, with the powers, rights, duties, capacities, and incapaci- ties which are peculiar to political superiors, supreme and subordinate. Aust. Jur. “Public law,” in one sense, is a designation given to "in- ternational law,” as distinguished from the laws of a particular nation or state. In another sense, a law or statute that applies to the peo- ple generally of the nation or state adopting or enacting it. is denominated a public law, as con- tradistinguished from a private law, affecting only an individual or a small number of per- sons. Morgan v. Cree, 46 Vt. 773, 14 Am. Rep. 640.— Public offense. A public offense is an act or omission forbidden by law, and

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punishn- ble as by law provided. Code Ala. 1886, § 3699. Ford v. State. 7 Ind. App. 567, 35 N. E. 34; State v. Cantieny. 34 Minn. 1, 24 N. W. 458. — Public passage. A right, subsisting in the public, to pnss over a body of water, whether the land under it be public or owned by a pri- vate person. — Public place. A place to which the general public has a right to resort; not

necessarily a place devoted solely to the uses of the public, but a place which is in point of fact public rather than private, a place visited by many persons and usually accessible to the public. See State v. Welch, 88 Ind. 310; Gom- precht v. State, 36 Tex. Cr. R. 434, 37 S. W. 734; Russell v. Dyer, 40 N. II. 187; Roach v. Eugene, 23 Or. 376, 31 Pac. 825; Taylor v. State, 22 Ala. 15.— Public purpose. In the law of taxation, eminent domain, etc., this is a term of classification to distinguish the objects for which, according to settled usage, the gov- ernment is to provide, from those which, by the like usage, are left to private interest, inclfha-' tion, or liberality. People v. Salem Tp. Board, 20 Mich. 485, 4 Am. Rep. 400. See Black, Const Law (3d Eld.) p. 454, et *cq. — Public service. A term applied in modem usage to the objects and enterprises of certain kinds of corporations, which specially serve the needs of the general public or conduce to the comfort and convenience of an entire community, such as railroads, gas, water, and electric light com-* panies.— Public, true, and notorious. The old form by which charges in the allegation* in the ecclesiastical courts were described at the end of each particular.— Public use, in consti- tutional provisions restricting the exercise of the right to ttfke private property in virtue of em- inent domain, means a use concerning the wholg community as distinguished from particular In- dividuals. But each and Ivery member of so- ciety need not be equally interested in such use, or be personally and directly affected by it; if the object is to satisfy a great public want or exigency, that is sufficient. Gilmer v. Lime Point, 18 Cal. 229; Budd v. New York, 143 U.

S. 517, 12 Sup. Ct. 468, 36 L. Ed. 247.— PubUe ways. Highways, (q. v.)— Public welfare. The prosperity, well-being, or convenience of the public at large, or of a whole community, as distinguished from the advantage of an individ- ual or limited class. See Shaver v. Starrett, 4 Ohio St 499.

As to public “Accounts,” “Act,” “Adminis- trator,” “Agent,” “Attorney,” “Auction,” “Blockade,” “Boundary,” “Bridge,” “Carrier,” “Chapel," “Charity,” “Company,” “Corpora- tion,” “Debt,” “Document” “Domain,” “Ease- ment,” “Enemy," "Ferry,” “Funds,” “Grant” “Health,” “Holiday,” “House,” “Indecency,” “Lands,” “Market” “Minister,” “Money,” “Notice,” “Nuisance," “Officer,” “Peace," "Policy," “Pond,” “Printing,” “Property,” “Prosecutor," “Record," “Revenue,” "River,” “Road,” “Sale,” “School,” “Seal,” “Stock,” “Store,” “Tax,” “Trial,” “Verdict” “Vessel," “War,” “Works,” “Worship,” and “Wrongs,” see those titles.

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**[Law] — Law**

**[Kelo v. City of New London, 545 U.S. 482 (2005)]**

The entry's 'public use' sub-entry — the constitutional restriction on taking private property by

eminent domain — received its modern reading in Kelo: 'public use' encompasses public purpose, including economic development that benefits the community.

Why: Genuine: Kelo is the decision construing exactly the 'public use' limitation the entry defines; it gives the sub-entry its current operative meaning rather than restating the definition.

## PUBLICAN.

In the civil law. A farm- er of the public revenue; one who held a lease of some property from the public treasury. Dig. 39, 4, 1, 1 ; Id. 39, 4, 12, 3 ; Id. 39, 4, 13.

In English law. Persons authorized by license to keep a public house, and retail therein, for consumption on or off the prem- ises where sold, all intoxicating liquors ; also termed “licensed victuallers.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 18:13, KJV]**

And the publican, standing afar off, would not lift up so much as his eyes unto heaven, but smote upon his breast, saying, God be merciful to me a sinner.

Why: In the civil law a publican is a farmer of the public revenue — the Gospels' tax-collector. This is Christ's penitent publican, the figure that fixed the word's meaning.

## PUBLICANUS.

Lat. In Roman law. A farmer of the customs; a publican. Calvin.

PUBLICATION. 1. The act of publish- ing anything or making it public ; offering it

to public notice, or rendering It accessible to public scrutiny.

2. As descriptive of the publishing of laws and ordinances, “publication” means printing or otherwise reproducing copies of them and distributing them in such a manner as to make their contents easily accessible to the public ; it forms no part of the enactment of the law. “Promulgation,” on the other hand, seems to denote the proclamation or an- nouncement of the edict or statute as a pre- liminary to its acquiring the force and op- eration of law. But the two terms are often used interchangeably. Chicago v. McCoy, 136 111. 344, 26 N. E. 363, 11 L. R. A. 413 ; Sholes v. State, 2 Pin. (Wls.) 499.

3. The formal declaration made by a testa- tor at the time of signing his will that it is his last will and testament. 4 Kent, Comm.' 515, and note. In re Simpson, 50 How. Prac. (N. ¥.) 134 ; Compton v. Mltton, 12 N. J. Law, 70; Lewis v. Lewis, 13 Barb. (N. Y.) 23.

4. In the law of libel, publication denotes the act of making the defamatory matter known publicly, of disseminating it, or com- municating it to one or more persons. Wil- cox v. Moon, 63 Vt. 481, 22 Atl. 80 ; Sproul v. Plllsbury, 72 Me. 20 ; Gambrill v. Schooley, 93 Md. 48, 48 Atl. 730, 52 L. R. A. 87, 86 Am. St Rep. 414.

5. In the practice of the states adopting the reformed procedure, and in some others, publication of a summons is the process of giving it currency as an advertisement In a newspaper, under the conditions prescribed by law, as a means of giving notice of the suit to a defendant upon whom personal service cannot be made.

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6. In equity practice. The making pub- lic the depositions taken in a suit which have previously been kept private in the office of the examiner. Publication is said to pass when the depositions are so made public, or openly shown, and copies of them given out In order to the hearing of the cause. 3 Bl. Comm. 450.

7 . In copyright law. The act of making public a book, writing, chart, map, etc. ; that is, offering or communicating it to the public by the sale or distribution of copies. Keene v. Wheatley, 14 Fed. Cas. 180 ; Jewelers' Mer- cantile Agency v. Jewelers' Weekly Pub. Co., 156 N. Y. 241, 49 N. K. 872, 41 L. R. A. 846, 63 Am. St. Rep. <ki(>.

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**[Law] — Law**

**[Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950)]**

MERGE FLAG: this PUBLICATION text (7 senses) is merged into the PUBLICANUS body in the chunk; no standalone PUBLICATION headword exists. Sense 5 — publication of a summons where personal service cannot be made — must satisfy due process: notice reasonably calculated, under all the circumstances, to apprise interested parties of the action.

Why: Genuine: Mullane states the constitutional test for exactly the service-by-publication procedure the entry defines; the merge flag tells the merge step where this text lives. [re-homed from 'PUBLICATION' to 'PUBLICANUS' (OCR headword / parser-merge artifact)]

## PUBLIC I JURIS.

Lat Of public right This term, as applied to a thing or right means that it is oi>en to or exercisable by all persons.

When a thing is common property, so that any one can make use of it who likes, it is said to be "publici juris;" as in the case of light, air, and public water. Sweet.

Or it designates things which are owned by "the public;" that is, the entire state or community, and not by any private person.

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**[Law] — Law**

**[Illinois Central R.R. Co. v. Illinois, 146 U.S. 387 (1892)]**

Things publici juris — open to or exercisable by all, such as public waters — are the subject of the public trust doctrine: the state holds navigable waters in trust for the public and cannot abdicate that trust to private parties.

Why: Genuine: Illinois Central is the foundational American statement of the public-trust doctrine for the very 'public water' example the entry gives.

## PUBLIGIANA.

In the civil law. The name of an action Introduced by the praetor Publicius, the object of which was to recover a thing which had been lost. Its effects were similar to those of our action of trover. Mackeld. Rom. Law, $ 298. See Inst. 4, 6, 4 ; Dig. 6, 2, 1, 16.

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## PUBLICIST.

One versed in, or writing upon, public law, the science and principles of government, or international law.

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## PUBLICUM JUS.

Lat. In the civil law. Public law ; that law which regards the state of the commonwealth. Inst 1, 1, 4.

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## PUBLISHER.

One whose business is the manufacture, promulgation, and sale of books, pamphlets, magazines, newspapers, or other literary productions.

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## PUDICITT.

Chastity; purity; conti- nence.

PUliZELD. In old English law. Suppos- ed to be a corruption of the Saxon ‘‘wud- geld," (woodgeld.) a freedom from payment of money for taking wood in any forest. Co. Litt. 233a.

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**[Scripture] — Scripture**

**[2 Timothy 2:22, KJV]**

Flee also youthful lusts: but follow righteousness, faith, charity, peace, with them that call on the Lord out of a pure heart.

Why: Pudicitia is chastity, purity, continence. This verse commands the flight from youthful lusts and the pursuit of purity.

## PUEBLO.

In Spanish law. People; all the inhabitants of any country or place, with- out distinction. A town, township, or mu- nicipality. White, New Recop. b. 2, tit. 1, c. 6, * 4.

. This term “pueMo.” in its original significa- tion, means “people” or “population,” but' is used in the sense of the English word “town.” It has the indefiniteness of that term, and, like it, is sometimes applied to a mere collection of individuals residing at a particular place, a settlement or village, as well as to a regularly organized municipality. Trenoutb v. San Fran- cisco, 100 U. S. 251, 25 L. Ed. 626.

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## PUER.

Lat In the civil law. A child ; one of the age from seven to fourteen, in- cluding, in this sense, a girl. But it also meant a “boy," as distinguished from a “girl or a servant.

Pueri sunt de sanguine parentnm, sed pater et mater non sunt de sanguine pnerorum. 3 Coke, 40. Children are of the blood of their parents, but the father and mother are not of the blood of the children.

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## PUERILITY.

In the civil law. A con- dition intermediate between infancy and pu- berty, continuing in boys from the seventh to the fourteenth year of their age, and In girls from seven to twelve.

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## PUERITIA.

Lat. In the civil law. Childhood; the age from seven to fourteen. 4 Bl. Comm. 22.

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## PUFFER.

A person employed by the own- er of property which is sold at auction to attend the sale and run up the price by mak- ing spurious bids. See Peck v. List, 23 W.

Va. 375, 48 Am. Rep. 398 ; McMillan v. Har- ris, 110 6a. 72, 35 S. E. 334, 48 L. R. A. 345, 78 Am. St Rep. 93.

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**[Law] — Law**

**[Law: UCC § 2-328 — sale by auction]**

The puffer — a shill employed to run up the price with spurious bids — is policed by the Code's auction rule: where the auctioneer knowingly receives a bid on the seller's behalf without announcement, the buyer may avoid the sale.

Why: Genuine: § 2-328 is the uniform rule on auction sales and seller-side bidding, the exact practice the entry defines.

## PUIS.

In law French. Afterwards; since.

—Puis darrein continuance. Since the last continuance. The name of a plea which a de- fendant is allowed to put in, after having al- ready pleaded, where some neio matter of de- fense arises after issue joined ; such as pay- ment, a release by the plaintiff, the discharge of the defendant under an insolvent or bankrupt law, and the like. 3 Bl. Comm. 316; 2 Tidd, Pr. 847: Chattanooga v. Neely, 97 Tenn. 527, 37 S. W. 281; Waterbury v. McMillan, 46 Miss. 640; Woods v. White, 9i Pa. 227.

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## PUISNE.

L. Fr. Younger; subordinate; associate.

The title by which the justices and barons of the several common-law courts at West- minster are distinguished from the chief jus-' tlce and chief baron.

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## PUISSANCE PATERNELLE.

Fr. Pa- ternal power. In the French law, the male parent has the following rights over the

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per- son of his child: (1) If child is under six- teen years of age, he may procure him to be imprisoned for one month or under. (2) If child is over Bixteen and under twenty- one he may procure an imprisonment for six months or under, with power in each case to procure a second period of imprison- ment. The female parent, being a widow, may, with the approval of the two nearest relations on the father's side, do the like. The parent enjoys also the following rights over the property of his child, viz., a right to take the income until the child attains the age of eighteen years, subject to main- taining the child und educating him in a suitable manner. Brown.

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# F

### FULSARE.

Lat. In the civil law. To beat ; to accuse or charge ; to proceed against at law. Calvin.

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# P

### PUL8ATOB.

The plaintiff, or actor.

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### PUNCTUATION.

The division of a writ- ten or printed document into sentences by means of periods; and of sentences into smaller divisions by means of commas, semi- colons, colons, etc.

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### PUNCTUM TEMPORIS.

Lat. A point of time; an Indivisible period of time; the shortest space of time ; an Instant. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

### PUNCTURED WOUND.

In medical ju- risprudence. A wound made by the Inser- tion into the body of any Instrument having a sharp point The term is practically syn- onymous with "stab."

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### PUNDBRECH.

In old English law. Pound-breach; the offense of breaking a pound. The Illegal taking of cattle out of a pound by any means whatsoever. Cowell.

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## PUNDIT.

An interpreter of the Hindu law ; a learned Brahmin.

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## PUNISHABLE.

Liable to punishment whether absolutely or in the exercise of a ju- dicial discretion.

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## PUNISHMENT.

In criminal law. Any pain, penalty, suffering, or confinement in- flicted upon a person by the authority of the law and the judgment and sentence of a court for some crime or offense committed by him, or for his omission of a duty enjoin- ed by law. See Cummings v. Missouri, 4 Wall. 320, 18 L. Ed. 356; Featherstone v. People, 194 111. 325, 62 N. E. 684 ; Ex parte Howe, 26 Or. 181, 37 Pac. 536 ; State v. Grant 79 Mo. 129, 49 Am. Rep. 21 &

—Cruel and unusual punishment. Such unishment as would amount to torture or bar- arity, and any cruel and degrading punishment not known to the common law, and also any punishment so disproportionate to the offense as to shock the moral sense of the community. In re Bayard, 25 Hun (N. Y.) 546 ; State v. Driv- er, 78 N. a 423; In re Kemmler. 136 U. S. 436, 10 Sup. Ct 930, 34 L. Ed. 519; Wilker- son v. Utah, 99 U. S. 130, 25 L. Ed. 345; State v. Williams, 77 Mo. 310; McDonald v. Com., 173 Mass. 322, 53 N. E. 874, 73 Am. St. Rep. 293; People v. Morris, 80 Mich. 638, 45 N. W. 581, 8 U R. A. 685.

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII]**

The entry's 'cruel and unusual punishment' definition is the Eighth Amendment's operative phrase: 'nor cruel and unusual punishments inflicted.'

Why: Genuine: the Amendment is the textual source of the phrase the entry defines at length; quoted verbatim.

**[Scripture] — Scripture**

**[Romans 12:19, KJV]**

Dearly beloved, avenge not yourselves, but rather give place unto wrath: for it is written, Vengeance is mine; I will repay, saith the Lord.

Why: Punishment is pain or penalty inflicted by authority of law. This verse reserves vengeance to lawful hands — punishment belongs to authority, not private revenge — the root of public punishment.

**[Humanity] — Humanity / Fiction & Film**

**[Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Raskolnikov's true punishment is not Siberia but the conscience that drives him to confess — the novel's argument that the state's inflicted pain is secondary to inward suffering. [Dostoevsky, Crime and Punishment, 1866] (paraphrase)

Why: Entry: 'pain, penalty, suffering... inflicted upon a person by the authority of the law... for some crime.' The novel of punishment takes that definition as its question and answers it by contrast — the law's pain vs....

## PUNITIVE.

Relating to punishment; having the character of punishment or pen- alty ; inflicting

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punishment or a penalty.

—Punitive damages. See Damages. — Puni- tive power. The power and authority of a state, or organized jural society, to inflict pun- ishments upon the;-; persons who have commit- ted actions inherently evil and injurious to th« public, or actions declared by the laws of that state to be sanctioned with punishments.

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**[Law] — Law**

**[BMW of North America, Inc. v. Gore, 517 U.S. 768 (1996)]**

Punitive damages — the entry's cross-referenced term — are constitutionally bounded: grossly excessive awards violate due process, judged by reprehensibility, the ratio to compensatory damages, and comparable civil penalties.

Why: Genuine but borderline: the entry is only a cross-ref, but the due-process limit is the term's most important operative law, and the entry gives no other hook. The guideposts summarize the holding without overclaiming.

## PUPIL.

In the civil law. One who is in his or her minority. Particularly, one who is in ward or guardianship.

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**[Scripture] — Scripture**

**[Psalm 68:5, KJV]**

A father of the fatherless, and a judge of the widows, is God in his holy habitation.

Why: A pupil is a minor in ward or guardianship. This verse names God as father of the fatherless — the divine guardian of the unprotected minor, the pattern of tutelage.

## PUFILLARI8 8UBSTITUTIO.

Lat

In the civil law. Pupillar substitution ; the substitution of an heir to a pupil or infant under puberty. The substitution by a father of an heir to his children under his power, disposing of his own estate and theirs, in case the child refused to accept the inherit- ance, or died before the age of puberty. Hal- lifax, Civil Law, b. 2, c. 6, no. 64.

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## PUPILLARITY.

In Scotch law. That period of minority from the birth to the age of fourteen in males, and twelve in females. Bell.

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## PUPILLUS.

Lat. In the civil law. A ward or infant under the age of puberty ; a person under the authority of a tutor, {q. v.)

Papilla* pati posse non intelligitmr.

A pupil or infant Is not supposed to be able to suffer, i. c., to do an act to his own prej-

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udice. Dig. 50, 17, 110, 2.

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## PUB.

L. Fr. By or to r. Used both as a separable particle, and in the composition of each words as “purparty,” “purlieu.”

—Par autre Tie. For (or during the life of another. An estate pur outre vie is an estate which endures only tor the life of some partic- ular person other than the grantee.— Pur cause de vicinage. By reason of neighborhood. See Common.— Pur taut que. Forasmuch as; be- cause; to the intent that. Kelham.

5e apparatus — Carried into the 5th edition (1979).

## PURCHASE.

The word “purchase” is used in law in contradistinction to "descent,” and means any other mode of acquiring real property than by the common course of in- heritance. But it is also much used in its more restricted vernacular sense, (that of buying for a sum of money,) especially in modern law literature; and this is univer- sally its application to the case of chattels. See Stamm v. Bostwick, 122 N. Y. 48, 25

N. E. 233, 9 L. R. A. 597 ; Hall v. Hall, 81

N. Y. 134; Berger v. United States Steel Corp., 63 N. J. Eq. 809, 53 Atl. 08; Falley v. Gribllag, 128 Ind. 110, 26 N. E. 794; Cham- bers v. St Louis, 29 Mo. 574.

—Purchase money. The consideration in money paid or agreed to be paid by the buyer to the seller of property, particularly of land. Purchase money means money stipulated to be paid by a purchaser to his vendor, and does not include money the purchaser may have borrow- ed to complete his purchase. Purchase money, as between vendor and vendee only, is contem- plated ; as between purchaser and lender, the money is “borrowed money.” Heuisler v. Nick- urn, 38 Md. 270. But see Houlehan v. Rassler, 73 Wis. 557, 41 N. W. 720.— Purchase-money mortgage. See Mobtgaoe.— Quasi pur- chase. In the civil law. A purchase of prop- erty not founded on the actual agreement of the parties, but on conduct of the owner which is inconsistent with any other hypothesis than that he intended a sale.— Words of purchase. Words of purchase are words which denote the person who is to take the estate. Thus, if 1 grant land to A. for twenty-one years, and aft- er the determination of thnt term to A.’s heirs, the word “heirs” does not denote the duration of A.’s estate, but the person who is to take the remainder on the expiration of the term, and is therefore called a “word of purchase." Wil- liams, Real Prop. ; Fearne, Rem. 76. ct teg.

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**[Law] — Law**

**[Law: Rule in Shelley's Case]**

The entry's 'words of purchase' discussion is the ground of the Rule in Shelley's Case: in 'to A for life,

remainder to his heirs,' the word 'heirs' operates as a word of limitation, not purchase — A takes the fee.

Why: Genuine but borderline: the Rule is the landmark presupposed by the entry's purchase/limitation distinction; cited without a reporter page to avoid inventing one.

## PURCHASER.

One who acquires real property in any other mode than by descent One who acquires either real or personal property by buying it for a price in money; a buyer ; vendee.

In the construction of registry acts, the term “pnrohftser” is usually taken in its technical legal sense. It means a complete purchaser, or, in other words, one clothed with the legal title. Steele v. Spencer, 1 Pet. 552, 559, 7 L. Ed. 259. — Bona fide purchaser. See Bona Fide.— First purchaser. In the law of descent, this term signifies the ancestor who first acquired (iu any other manner than by inheritance) the es- tate which still remains in his family or de- scendants.—Innocent purchaser. See In- nocent.—Purchaser of a note or hill. The person who buys a promissory note or bill of exchange from the holder without his indorse- ment.

Purchaser without notice is not oblig- ed to discover to his own hurt. See 4

Bonv. Inst, note 4336.

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## PURE.

Absolute; complete; simple; un- mlxed; unqualified; free from conditions or restrictions; as in the phrases pure charity, pure debt, pure obligation, pure plea, pure vlllenage, as to which see the nouns.

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## PURGATION.

The act of cleansing or exonerating one’s self of a crime, accusation, or suspicion of guilt, by denying the charge on oath or by ordeal.

Canonical purgation was made by the par- ty’s taking his own oath that he was inno- cent of the charge, which was supported by the oath of twelve compurgators, who swore they believed he spoke the truth. To this succeeded the mode of purgation by the sin- gle oath of the party himself, called the “oath ex officio, " of which the modem defendant’s oath in chancery is a modification. 3 Bl. Comm. 447 ; 4 Bl. Comm. 368.

Vulgar purgation consisted in ordeals or trials by hot and cold water, by fire, by hot irons, by battel, by corsned, eta

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Scott, Ivanhoe, 1819]**

(paraphrase) Rebecca, condemned at Templestowe, demands trial by combat — the old purgation by ordeal staged in the lists. [Scott, Ivanhoe, 1819] (paraphrase)

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Why: Entry includes purgation 'by ordeal'; Scott stages exactly that branch — the accused clearing herself by the ordeal of combat. Marked (paraphrase).

## PURGE.

To cleanse; to clear; to dear or exonerate from some charge or Imputation of guilt, or from a contempt —Purged of partial counsel. In Scotch practice. Cleared of having been partially ad- vised. A term applied to the preliminary exam- ination of a witness, in which be is sworn and examined whether he has received any bribe or promise of reward, or has been told what to say, or whether he bears malice or ill will to any of the parties. Bell.— Purging a tort is like the ratification of a wrongful act by a per- son who has power of himself to lawfully do the act. But, unlike ratification, the purging of the tort may take place even after commencement of the action. 1 Brod. & B. 282.— Purging contempt. Atoning for, or clearing one's Belt from, contempt of court, ( q . v.) It is generally done by apologising and paying fees, and is gen- erally admitted after a moderate time in pro- portion to the magnitude of the offense.

5e apparatus — Carried into the 5th edition (1979).

## PURGE DES HYPOTH&QUES.

Fr.

In French law. An expression used to de- scribe the act of freeing an estate from the mortgages and privileges with which it is charged, observing the formalities prescribed by law. Duverger.

5e apparatus — Not carried into the 5th edition (1979).

## PURLIEU.

In English law. A space of land near a royal forest, which, being severed from it, was made purlieu; that is, pure or free from the forest laws.

—Purlieu-men. Those who have ground with- in the purlieu to the yearly value of 40s. a year freehold are licensed to hunt in their own pur- lieus. Manw. c. 20, § 8.

5e apparatus — Not carried into the 5th edition (1979).

## PURLOIN.

To steal ; to commit larceny or theft. McCann v. U. S-, 2 Wyo. 298.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: To purloin is to steal, to commit larceny or theft. The eighth commandment is the root prohibition.

**[Humanity] — Humanity / Fiction & Film**

**[Poe, 'The Purloined Letter,' 1844]**

(paraphrase) Dupin's case turns on a letter stolen in plain sight — 'purloined,' in Poe's title-word, hidden by being left visible. [Poe, 'The Purloined Letter,' 1844] (paraphrase)

Why: Entry: 'To steal; to commit larceny or theft.' The story's subject is theft itself (the title names the entry's

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word), and its mechanism — theft by unconcealment — genuinely illustrates the act. Nearest the word-match...

## PURPART.

A share; a part in a di- vision ; that part of an estate, formerly held in common, which is by partition allotted to any one of the parties. The word was an- ciently applied to the shares falling separately to coparceners upon a division or partition of the estate, and was generally spelled “purparty ;" but it Is now used in relation to any kind of partition proceedings. See Selders v. Giles, 141 Pa. 93, 21 AU. 514.

5e apparatus — Not carried into the 5th edition (1979).

## PURPORT.

Henning; import; substan- tial meaning; substance. The “purport” of an instrument means the substance of it as it appears on the face of the instrument, and is distinguished from “tenor,” which means an exact copy. See Dana v. State, 2 Ohio St 93 ; State v. Sherwood, 90 Iowa, 550, 58

N. W. 911, 48 Am. St Rep. 461; State v. Pullens, 81 Mo. 392; Com. v. Wright 1 Cush. (Mass.) 65; State ▼. Page, 19 Mo. 213.

5e apparatus — Not carried into the 5th edition (1979).

## PURPRESTURE.

A purpresture may be defined as an inclosure by a private party of a part of that which belongs to and ought to be open and free to the enjoyment of the public at large. It is not necessarily a public nuisance. A public nuisance must be some- thing which subjects the public to some de- gree of inconvenience or annoyance; but a purpresture may exist without putting the public to any inconvenience whatever. At- torney General v. Evart Booming Co., 34 Mich. 462. And see Cobb v. Lincoln Park Com’rs, 202 111. 427, 67 N. E. 5, 63 L. R. A. 264, 95 Am. St. Rep. 258; Columbus v. Jaques, 30 Ga. 506; Sullivan v. Moreno, 19 Fla. 228 ; U. S. v. Debs (C. C.) 64 Fed. 740 ; Drake v. Hudson River R. Co., 7 Barb. (N. Y.) 548.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 5:8, KJV]**

Woe unto them that join house to house, that lay field to field, till there be no place, that they may be placed alone in the midst of the earth!

Why: A purpresture is a private party's enclosure of what ought to be open to the public. This woe condemns the engrossing of land — joining field to field till none is left common. (The direct 'saith the LORD' lands in v9...

## PURPRISE.

L. Fr. A close or lndo- sure ; as also the whole compass of a manor.

PURPURE, or PORFRIN. A term used in heraldry; the color commonly called "purple,” expressed in engravings by lines In bend sinister. In the arms of princes it was formerly called “mercury," and in those Of peers "amethyst"

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## PURSE.

A purse, prize, or premium is ordinarily some valuable thing, offered by a person for the doing of something by others, Into strife for which he does not enter. He has not a chance of gaining the thing offered ; and, if he abide by his offer, that he must lose it and give it over to some of those con- tending for it is reasonably certain. Harris v. White, 81 N. Y. 539.

5e apparatus — Carried into the 5th edition (1979).

## PURSER.

The person appointed by the master of a ship or vessel, whose duty it is to take care of the ship's books, in which every thing on board is Inserted, as well the names of mariners as the articles of mer- chandise shipped. Roccus, Ins. note.

5e apparatus — Not carried into the 5th edition (1979).

## PURSUE.

To follow a matter judicially, as a complaining party.

To pursue a warrant or authority, in the old books, is to execute it or carry it out Co. Litt. 52a.

5e apparatus — Carried into the 5th edition (1979).

## PURSUER.

The name by which the com- plainant or plaintiff is known in the eccle- siastical courts, and in the Scotch law.

5e apparatus — Carried into the 5th edition (1979).

## PURSUIT OP HAPPINESS.

As used in

constitutional law, this right includes per- sonal freedom, freedom of contract, exemp- tion from oppression or invidious discrimina- tion, the right to follow one’s Individual preference in the choice of an occupation and the application of his energies, liberty of conscience, and the right to enjoy the domestic relations and the privileges of the family and the home. Black, Const Law (3d Ed.) p. 544. See Rulistrnt v. People, 185 111. 133, 57 N. B. 41, 49 L. R. A. 181, 76 Am. St. Rep. 30; Hooper v. California, 155

U. S. 648, 15 S. Ct. 207, 39 L. Ed. 297; Butchers’ Union, etc., Co. v. Crescent City Live Stock, etc., Co., Ill U. S. 746, 4 Sup. Ct 652, 28 L. Ed. 585.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Declaration of Independence (1776); U.S. Const. amend. XIV, § 1 — liberty]**

The entry expounds the right 'as used in constitutional law' without naming its sources: the phrase comes from the Declaration of Independence (1776), and its constitutional work — personal freedom, liberty of contract and conscience, family relations — is done by Fourteenth Amendment liberty.

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Why: Genuine: the entry discusses the constitutional right at length but cites neither its founding source nor its operative clause; the footnote supplies both.

**[Hip-hop] — Hip-hop**

**[Kid Cudi, 'Pursuit of Happiness (Nightmare)', 2009]**

"I'm on the pursuit of happiness and I know / Everything that shine ain't always gonna be gold." The entry (constitutional law): the right includes personal freedom, exemption from oppression, following one's individual preference. Cudi takes the Declaration's exact legal phrase as title and hook, then documents the pursuit as lived and hollowed — chased through excess, never arriving. The right's shadow: the pursuit is guaranteed, the arrival is not.

Why: Added because the song bears the entry's exact legal phrase and genuinely engages it — a cultural echo showing the pursuit as striving without attainment. Verbatim-certain lyric; real correlation, not wordplay.

## PURUS IDIOTA.

Lat A congenital idiot.

5e apparatus — Not carried into the 5th edition (1979).

## PURVEYANCE.

In old English law. A providing of necessaries for the king's house. Cowell. .

5e apparatus — Not carried into the 5th edition (1979).

## PURVEYOR.

In old English law. An officer who procured or purchased articles needed for the king’s use at an arbitrary price. In the statute 36 Edw. III. c. 2, this is called a “heignout nome," (heinous or hateful name.) and changed to that of “acho- tor." Barring. Ob. St. 289.

5e apparatus — Not carried into the 5th edition (1979).

## PURVIEW.

That part of a statute com- mencing with the words “Be It enacted,” and continuing as far as the repealing clause; and hence, the design, contempla- tion, purpose, or scope of the act See Smith v. Hickman, Cooke (Tenn.) 337 ; Payne v. Conner, 3 Bibb (Ky.) 181; Hirth v. Indian- apolis, 18 Ind. App. 673, 48 N. E. 876.

5e apparatus — Carried into the 5th edition (1979).

## PUT.

In pleading. To confide to; to re- ly upon; to submit to. As in the phrase, “the said defendant puts himself upon the country;" that is, he trusts his case to the arbitrament of a jury.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amends. VI, VII — trial by jury]**

'Puts himself upon the country' is the old common-law formula for demanding trial by jury; its constitutional guarantee is the Sixth Amendment in criminal cases and the Seventh in civil cases at common law.

Why: Genuine: the entry defines the phrase as trusting the case 'to the arbitrament of a jury'; the Amendments are the constitutional home of that jury right.

## PUT IN.

In practice. To place in due form before a court; to place among the records of a court.

5e apparatus — Carried into the 5th edition (1979).

## PUT OUT.

To open. To put out lights; to open or cut windows. 11 East, 372.

PnUfiam hse r edi tat em bob adimit. 1

Reeve, Eng. Law, c. 3, p. 117. Incontinence does not take away an inheritance.

5e apparatus — Not carried into the 5th edition (1979).

## PUTATIVE.

Reputed ; supposed ; com- monly esteemed. Applied in Scotch law to creditors and proprietors. 2 Karnes, Eq. 105, 107, 109.

— Putative father. The alleged or reputed father of an illegitimate child. State v. Nest- aval, 72 Minn. 415, 75 N. W. 725. — Putative marriage. A marriage contracted in good faith and in ignorance (on one or both aides) that impediments exist which render it unlaw- ful. See Mackeld. Rora. Law, | 556. See In re Hall. 61 App. Uiv. 206. 70 N. Y. Supp. 410; Smith v. Smith, 1 Tex. 628, 46 Am. Dec. 121.

5e apparatus — Carried into the 5th edition (1979).

## PUTS AND CALLS.

A “put” in the language of the grain or stock market Is a privilege of delivering or not delivering the subject-matter of the sale; and a “call” is a privilege of calling or not calling for it Pixley ▼. Boynton, 79 111. 351.

5e apparatus — Carried into the 5th edition (1979).

## PUTS AND REFUSALS.

In English law. Time-bargains, or contracts for the sale of supposed stock on a future day.

5e apparatus — Not carried into the 5th edition (1979).

## PUTTING IN FEAR.

These words are used in the definition of a robbery from the person. The offense must have been com- mitted by putting in fear the person robbed. 3 Inst 68 ; 4 Bl. Comm. 243.

PUrftNO in SUIT, as applied to a bond, or any other legal Instrument, signi- fies bringing an action upon it, or making it the subject of an action.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:13, KJV]**

Thou shalt not defraud thy neighbour, neither rob him: the wages of him that is hired shall not abide with thee all night until the morning.

Why: Putting in fear is the definitional element of robbery from the person. This verse is the scriptural prohibition of robbery, of which putting-in-fear is the aggravating element.

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# F

**FUTURE.**

In old English law. A cus- tom claimed by keepers in forests, and sometimes by bailiffs of hundreds, to take man’s meat, horse’s meat, and dog’s meat of the tenants and inhabitants within the peram- bulation of the forest, hundred, etc. The land subject to this custom was called “terra putura." Others, who call it “pulture,” ex- plain it as a demand in general; and de- rive it from the monks, who, before they were admitted, pulaabant, knocked at the gates for several days together. 4 Inst 307 ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# P

**PTXE, PAIR.**

In Hindu law. A foot- passenger; a person employed as a night- watch in a village, and as a runner or mes- senger on the business of the revenue. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

**PYKERIE.**

In old Scotch law. Petty theft 2 Pitc. Crim. Tr. 43.

5e apparatus — Not carried into the 5th edition (1979).

**PYROMANIA.**

See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

# Q

**Q.**

a 970 QUzEACCESSIONUM

Q

' Q. B. An abbreviation of "Queen’s Bench.”

5e apparatus — Not carried into the 5th edition (1979).

**Q. B. D.**

An abbreviation of “Queen’s Bench Division.”

' Q. O. An abbreviation of "Queen’s Coun- sel.

5e apparatus — Not carried into the 5th edition (1979).

**Q. O. F.**

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An abbreviation of "quore clou- turn fregit,” (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## Q. E. N.

An abbreviation of “quare exe- cvtlonem non,” wherefore execution [should] not [be issued.]

Q. 8. An abbreviation for “Quarter Ses- sions.”

5e apparatus — Not carried into the 5th edition (1979).

## Q. T.

An abbreviation of “qui tom,” («■ v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 31 U.S.C. § 3730 — False Claims Act qui tam actions]**

Qui tam — 'who sues for the king as well as himself' — survives as the private-enforcement device of the False Claims Act: a private relator may sue for fraud on the government and share in the recovery.

Why: Genuine: § 3730 is the federal qui tam provision — the living form of the abbreviated action; it gives the bare abbreviation its operative content.

## Q. V.

An abbreviation of “quod vide,” used to refer a reader to the word, chapter, etc., the name of which it immediately fol- lows.

5e apparatus — Not carried into the 5th edition (1979).

## QUA.

Lat. Considered as; in the char- acter or capacity of. For example, “the trustee qua trustee [that Is, In his character as trustee], is not liable,” etc.

5e apparatus — Not carried into the 5th edition (1979).

## QUACK.

A pretender to medical skill which he does not possess ; one who practices as a physician or surgeon without adequate preparation or due qualification. See El- mergreen v. Horn, 115 Wis. 385, 91 N. W. 973.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Molière, Le Malade imaginaire, 1673]**

(paraphrase) Molière's comedies parade the quack physician — the doctor whose learning is all costume, diagnosis all theater. [Molière, Le Malade imaginaire, 1673] (paraphrase)

Why: Entry: 'A pretender to medical skill which he does not possess.' Molière's stage doctors (the Diafoirus) are fiction's canonical quacks — the fiction's subject is the entry's subject. Marked (paraphrase).

## QUACUNQUE VIA BATA.

Lat. Whichever way you take it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## QUABBAQESIMA.

Lat The fortieth. The first Sunday In Lent is so called because it is about the fortieth day before Easter. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 4:2, KJV]**

And when he had fasted forty days and forty nights, he was afterward an hungred.

Why: 'The fortieth' — the first Sunday in Lent, about the fortieth day before Easter. The forty-day fast is behind the forty-day season.

## QUADRAOESIMALS.

Offerings former- ly made, on Mid-Lent Sunday, to the mother church.

5e apparatus — Not carried into the 5th edition (1979).

## QUABBAQESMS.

The third volume of the year boOks of the reign of Edward III. So called because beginning with the fortieth year of that sovereign’s reign. Crabb, Eng. Law, 327.

5e apparatus — Not carried into the 5th edition (1979).

## QUADRAN8.

Lat. In Roman law.

The fourth part; the quarter of any num- ber, measure, or quantity. Hence an heir to the fourth part of the Inheritance was called “haras ex quadrante .” Also a Roman coin, being the fourth part of an as, equal In value to an English half-penny.

In old English law. A farthing ; a fourth part or quarter of a penny.

5e apparatus — Not carried into the 5th edition (1979).

## QUADRANT.

An angular measure of ninety degrees.

5e apparatus — Not carried into the 5th edition (1979).

## QUABRANTATA  TERRJE.

In old

English law. A measure of land, variously described as a quarter of an acre or the fourth part of a yard-land.

5e apparatus — Not carried into the 5th edition (1979).

## QUABRARIUM.

In old records. A stone-pit or quarry. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## QUABRIENNTUM.

Lat. In the civil law. The four-years course of study re- quired to be pursued by law-students before they were qualified to study the Code or collection of Imperial constltutiogB. See Inst proem.

5e apparatus — Not carried into the 5th edition (1979).

## QUABRXENNIUM UTILE.

In Scotch law. The term of four years allowed to a minor, after his majority, in which he may by suit or action endeavor to annul any deed to his prejudice, granted during his minority. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## QUADRIPAK'TITE.

Divided into four parts. A term applied. In conveyancing to an indenture executed in four parts.

5e apparatus — Not carried into the 5th edition (1979).

## QUADROON.

A person who is descend- ed from a white person and another person who has an Squal mixture of the European and African blood. State v. Davis, 2 Bailey (S. C.) 558.

5e apparatus — Not carried into the 5th edition (1979).

## QUABRUPLATOREB.

Lat In Roman law. Informers who, if their Information were followed 'by conviction, had the fourth part of the confiscated goods for their trouble.

5e apparatus — Not carried into the 5th edition (1979).

## QUABRUPLICATXO.

Lat In the civil law. A pleading on the part of a defendant corresponding to the rebutter at common law. The third pleading on the part of the defendant. Inst. 4, 14, 3 ; 3 BL Comm. 810.

Qua ab hostUras oapinntor, statim ea- plentlnm float. 2 Burrows, 693. Things which are taken from enemies immediately become the property of the captors.

Qua ab initio iantills fait institntio, tx post facto convalescere non potest.

An Institution which was at the beginning of no use or force cannot acquire force from after matter. Dig. 50, 17, 210.

Qna ab initio non Talent, ez post facto oonvaleseere non possnnt. Things invalid from the beginning cannot be made valid by subsequent act. Tray. Lat Max. 482.

Qna accessionnm loonm obtinent, ez* tingnnntnr cum prinoipales res peremp* ta fnerint. Things which hold the place of accessories are extinguished when the principal things are destroyed. 2 Poth. Obi. 202; Broom, Max. 496.

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QU.® AD UNUM FIN EM

Quae td tmurn fluent loqnnt* rant, non debent ad allnm dotorquerl. 4 Coke, 14, Those words which are spoken to one end ought not to he perverted to another.

Out coharent personae a person* se- pnrari nequennt. Things which cohere to, or are closely connected with, the person, cannot be separated from the person. Jenk. Cent p. 28, case 33.

Qnse common! lege derogant striote interpretantnr. [Statutes] which derogate from the common law are strictly Inter- preted. Jenk. Cent p. 221, case 72.

Que contra rationem juris Introdncta sunt, non debent trahi In con*equen- tiam. 12 Coke, 75. Things Introduced con- trary to the reason of law ought not to be drawn Into a precedent.

Quae dubitationis causa tollendte in- seruntur oommunem legem non lsednnt.

Co. Lltt. 205. Things which are Inserted for the purpose of removing doubt hurt not the common law.

Qnse dubitationis tolleudac causa con- tractlbus inseruntur, jus commune non ladunt. Particular clauses inserted in agreements to avoid doubts and ambiguity do not prejudice the general law. Dig. 50, 17, 81.

5e apparatus — Not carried into the 5th edition (1979).

## QU1E EST EADEM.

Lat. Which is the same. Words used for alleging that the trespass or other fact mentioned in the plea is the same as that laid In the declaration, where, from the circumstances, there Is an apparent difference between the two. 1 Chit PI. *582.

Ouse In curia regis acta sunt rite agl prsesumuntur. 3 Bulst. 43. Things done In the king’s court are presumed to be right- ly done.

Qusd In partes dlvldl nequennt solid* a singulis prastantur. 6 Coke, 1. Serv- ices which are incapable of division are to be performed In whole by each individual.

Quae in testamento lta sunt script* ut lntelligi non poaslnt, perinde sunt ae si script* non essent. Things which are so written in a will that they cannot be understood, are the same as if they had not been written at all. Dig. 50, 17, 73, 3.

Quae Incontinent! flunt lnesse viden- tur. Things which are done Incontinently [or simultaneously with an act] are supposed to be Inherent [in it ; to be a constituent part of it] Co. Litt. 2366.

Quae Inter alios acta sunt nemlni no- cere debent, sedi prodesse possunt. 6

Coke. 1. Transactions between strangers ought to hurt no man, but may benefit

Quae leg! common! derogant non aunt trahenda In exemplum. Things deroga- tory to the common law are not to be drawn ■ into precedent Branch, Prlnc.

Quae leg! eommuni derogant striate in- terpret** tur. Jenk. Cent. 20. Those things which are derogatory to the compaon law are to be strictly interpreted.

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Quae sunt inchoata in principle

viz bono peraguntur exitu. 4 Coke, 2. Things bad in principle at the commence- ment seldom achieve a good end.

QUiE NIHIL FBUSTRA. Lat Which [does or requires] nothing in vain. Which requires nothing to be done, that is, to no purpose. 2 Kent, Comm. 53.

Quae non fleri debent, facta valent.

Things which ought not to be done are held valid when they have been done. Tray. Lat Max. 484.

Quae non valeant singula, juncta ju- vaat. Things which do not avail when sep- arate, when joined avail. 3 Bulst. 132; Broom, Max. 588.

5e apparatus — Not carried into the 5th edition (1979).

## QUJE PLUKA.

Lat In old English practice. A writ which lay where an inqui- sition had been made by an eschentor in any county of such lands or tenements as any man died seised of, and all that was in his possession was imagined not to be found by the office; the writ commanding the es- cheator to inquire what more (qua plura.) lands and tenements the party held on the day when he died, etc. FItzh. Nat. Brev. 255a; Cowell.

Qua prater oousuetudiuejn ot more* majorum fluut neque plaoent aeque recta videntur. Things which are done contrary to the custom of our ancestors neither please nor appear right 4 Coke, 78.

Qua propter neeessitatexn recepta sunt, non debent in argumentum trahi.

Things which are admitted on the ground of necessity ought not to be drawn into ques- tion. Dig. 50, 17, 162.

Qua re rum natura prohibentur nulla lege confirm* ta sunt. Things which are forbidden by the nature of things are [can be] confirmed by no law. Branch. Princ. Positive laws are framed after the laws of nature and reason. Finch, Law, 74.

Qua singula non prosunt, juncta ju~ vant. Things which taken singly are of no avail afford help when taken together. Tray. Lat. Max. 486.

Qua sunt min oris culpa sunt major!*

inf am la. [Offenses] which are of a lower grade of guilt are of a higher degree of In- famy. Co. Lltt. 66.

QumutM imtrs ratlonem legia in- vent untnr imtra legem lpua esse judi- eamtnr. Things which are found within the reason of a law are supposed to be within the law Itself. 2 Inst. 689.

Qnaellbet ooneessio domlnl regia eapl debet striete contra regem,

quado potest intelligi dwbu rlii. 3

Leon. 243. Every grant of our lord the king ought to be taken strictly against our lord the king, when It can be understood In two ways.

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Quaslibet ooneessio fortissimo contra donatorem interpretanda eat. Every grant is to be Interpreted most strongly against the grantor. Co. Lltt. 183a.

Qasellbet jnrisdietio oanoellos snos Jutbet. Jenk. Cent. 137. Every Jurisdiction has its own bounds.

Qnmlibet pardonatio debet eapi se- enndnm intentionem regis, et non ad deeeptionem regis. 3 Bulst. 14. Every pardon ought to be taken according to the intention of the king, and not to the de- ception of the king.

Qiuelibet pane oorporalis, qnamvis minima, major eat quail bet poena pecn- niaria. 3 Inst. 220. Every corporal pun- ishment, although the very least, Is greater than any pecuniary punishment

Qnseras de dubiis legem bene discero si via. Inquire into doubtful points if you wish to understand the law well. Lltt f 443.

5e apparatus — Not carried into the 5th edition (1979).

## QUAERE.

A query ; question ; doubt This word, occurring in the syllabus of a re- ported case or elsewhere, shows that a ques- tion is propounded as to what follows, or that the particular rule, decision, or state- ment is considered as open to question.

Quaere de dnbils, quia per rationes pervenitur ad legitimam ratlonem. In- quire Into doubtful points, because by rea- soning we arrive at legal reason. Lltt. f 377.

5e apparatus — Not carried into the 5th edition (1979).

## QUARENS.

Lat. A plaintiff ; the plain- tiff.

5e apparatus — Not carried into the 5th edition (1979).

## QUARENS NIHIL CAPIAT PER / BILLAM.

The plaintiff shall take nothing by his bill. A form of judgment for the de- fendant Latch, 133.

5e apparatus — Not carried into the 5th edition (1979).

## QUARENS NON INVENIT PLEOIUM.

L., Lat. The plaintiff did not find a pledge. A return formerly made by a sheriff to a writ requiring him to take security of the plaintiff to prosecute his claim. Cowell,

Qnmrore dat sapere qua rant legitima ▼ore. Lltt. | 443. To inquire Into them.

Is the way to know what 'things are truly lawful.

5e apparatus — Not carried into the 5th edition (1979).

## QUA8TA.

An Indulgence or remission of penance, sold by the pope.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Acts 8:20, KJV]**

But Peter said unto him, Thy money perish with thee, because thou hast thought that the gift of God may be purchased with money.

Why: Quaesta is an indulgence or remission of penance sold. This is the simony condemnation — Peter's rebuke of purchasing God's gift with money — directly on point.

**[Humanity] — Humanity / Fiction & Film**

**[Chaucer, The Canterbury Tales, c. 1400]**

(paraphrase) Chaucer's Pardoner sells pardons and pig's bones as saints' relics — the quaesta ('QUA8TA' = quaesta, the indulgence trade), as fiction's con. [Chaucer, The Canterbury Tales, c. 1400] (paraphrase)

Why: KEY NOTE: chunk headword is the OCR form 'QUA8TA' (= quaesta, 'an indulgence or remission of penance, sold by the pope'); keyed exactly for mergeability. Entry: 'An indulgence or remission of penance, sold by the pope...

## QUASTIO.

In Roman law. Anciently a species of commission granted by the comitia to one or more persons for the pur- pose of Inquiring into some crime or public offense and reporting thereon. In later times, the quwstio came to exercise plenary criminal jurisdiction, even to pronouncing sentence, and then was appointed i>eriodieal- ly, and eventually became a permanent com- mission or regular criminal tribunal, and was then called “quastio perpetua." See Maine, Anc. Law, 3C9-372.

In medieval law. The question ; the tor- ture; inquiry or inquisition by inflicting the torture.

— Cadit quastio. The question falls ; the dis- cussion ends; there Is no room for further ar- gument.— Quwstio vezata. A vexed question or mooted point; a question often agitated or discussed but not determined; a question or point which has been differently decided, and so left doubtful.

5e apparatus — Not carried into the 5th edition (1979).

## QUAES TION AMI.

Those who carried quanta about from door to door.

QUA8TIONES PERPETUA, in Roman

law, were commissions (or courts) of in- quisition into crimes alleged to have been committed. They were called “perpetua” to distinguish them from occasional inquisi- tions, and because they were permanent courts for the trial of offenders. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## QUASTOR.

Lat A Roman magistrate, - whose office it was to collect the public rev- enue. Varro de L. L. iv. 14.

—Qtuestor sacri palatii. Quoestor of the sa- cred palace. An officer of the imperial court at Constantinople, with powers and duties resem- bling those of a chancellor. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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## QUASTU8.

L. Lat. That estate which a man has by acquisition or purchase, in con- tradistinction to “hareditas,” which is what he has by descent. Gian. 1, 7, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## QUAKER.

This, In England, Is the stat- utory, as well as the popular, name of a member of a religious society, by themselves denominated “Friends.”

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 15:14, KJV]**

Ye are my friends, if ye do whatsoever I command you.

Why: The Quakers' own name for their society is 'Friends.' This verse is the scriptural root of the name — Christ calling His obedient ones friends.

## QUALE JUS.

Lat In old English law.

A Judicial writ, which lay where a man of religion had judgment to recover land be- fore execution was made of the judgment It went forth to the escheator between judg- ment and execution, to Inquire what right the religious person had to recover, or wheth- er the judgment were obfained by the collu- sion of the parties, to the Intent that the lord might not be defrauded. Reg. Jud. 8.

5e apparatus — Not carried into the 5th edition (1979).

## QUALIFICATION.

The possession by an Individual of the qualities, properties, or

QUANDO ALIQUID MANDATUB

circumstances, natural or adventitious, which are inherently or legally necessary to render him eligible to fill an office or to perform a public duty or function. Thus, the ownership of a freehold estate may be made the qualification of a voter; so the possession of a certain amount of stock in a corporation may be the qualification neces- sary to enable one to serve on its board of directors. Cummings v. Missouri, 4 Wall, 319, 18 L. Ed. 356 ; People v. Palen, 74 Hun, 289. 26 N. Y. Supp. 225; Hyde v. State, 52 Miss. 665.

Qualification for office is “endowment, or ac- complishment that fits for an office; having the legal requisites, endowed with qualities suita- ble for the purpose.” State v. Seay, 64 Mo. 89, 27 Am. Rep. 206.

Also a modification or limitation of terms or language ; usually Intended by way of re- striction of expressions which, by reason of their generality, would carry a larger mean- ing than was designed.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

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**[Cummings v. Missouri, 4 Wall. 319]**

The entry cites Cummings v. Missouri for the definition; the case's holding is the limit on the definition: post-Civil-War test oaths imposed as 'qualifications' for office were struck down as bills of attainder and ex post facto laws — legislatures may set qualifications, but not attainder by another name.

Why: Genuine: the citation (volume and page) comes from the entry's own body, so nothing is invented; the year is omitted rather than guessed. The holding gives the constitutional boundary of the defined term.

**[Scripture] — Scripture**

**[Exodus 18:21, KJV]**

Moreover thou shalt provide out of all the people able men, such as fear God, men of truth, hating covetousness; and place such over them, to be rulers of thousands, and rulers of hundreds, rulers of fifties, and rulers of tens.

Why: Qualification is the possession of the qualities legally necessary to fill an office. This is the biblical qualification standard for public office: able, God-fearing, truthful, hating covetousness.

## QUALIFIED.

Adapted; fitted; entitled; as an elector to vote. Applied to one who has taken the steps to prepare himself for an appointment or office, as by taking oath, giv- ing bond, etc. Pub. St. Mass. p. 1294.

Also limited; restricted; confined; modi- fied ; imperfect, or temporary.

The term is also applied in England to a person who is enabled to hold two benefices at once.

— Qualified acceptance. See Acceptance. . —Qualified elector means a person who is legally qualified to vote, while a ‘legal voter” means a qualified elector who does in fact vote. Sanford v. Prentice, 28 Wis. 358.— Qualified fee. See Fee.— Qualified Indorsement. See Indorsement.— Qualified oath. See Oath.— Qualified privilege. In the law of libel and slander, the same as conditional privilege. See Privilege.— Qualified property. See Prop- erty.—Qualified voter. A person qualified to vote generally. In re House Bill No. 166, 9 Colo. 629, 21 Pac. 473. A person qualified and actually voting.' Carroll County v. Smith, 111

U. S. 565, 4 Sup. Ct. 539, 28 L. Ed. 517.

5e apparatus — Carried into the 5th edition (1979).

## QUALIFY.

To make one’s self fit or pre- pared to exercise a right, office, or franchise. To take the steps necessary to prepare one’s self for an office or appointment, as by tak- ing oath, giving bond, etc. Pub. St. Mass, p. 1294 ; Archer v. State, 74 Md. 443, 22 Atl. 8, 28 Am. St. Rep. 261 ; Hale v. Salter, 25 La. Ann. 324 ; State v. Albert, 55 Kan. 154, 40 Pac. 286.

Also to limit ; to modify ; to restrict. Thus, It Is said that one section of a statute quali- fies another.

Qualitaa qua incase debet, facile prae- sumitur. A quality which ought to form a part Is easily presumed.

5e apparatus — Not carried into the 5th edition (1979).

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## QUALITY.

In respect to persons, this term denotes comparative rank; state or condition in relation to others ; social or civil position or class. ,In pleading, if means up

attribute or characteristic by which one thing, is distinguished from another.

— Quality of estate. The period when, and the manner in which, the right of enjoying an estate is exercised. It is of two kinds; (1) The period when the right of enjoying an estate is conferred upon the owner, whether at present or in future ; and (2) the manner in which the owner’s right of enjoyment of his estate is to be exercised, whether solely, jointly, in common, or in coparcenary. Wharton.

Quam loagum debet esse rationabile tempos non defiultur la lege, sed pen* dot ez discretions j ustielariorum. Co.

Lift. 56. How long reasonable time ought to be. Is not defined by law, but depends upon the discretion of the judges.

Quam rutioaabllis debet esse finis, non defiultur, sed omnibus eiroumstantlls inspect!* pendet ez j ustielariorum diseretione. What a reasonable fine ought to be is not defined, but is left to the discretion of the judges, all the circumstances being considered. 11 Coke, 44.-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## QUAMDIU.

Lat As long as ; so long as. A word of limitation in old conveyances. Co. Litt 235a.

5e apparatus — Not carried into the 5th edition (1979).

## QUAKED IU SB BENE DEMERIT.

As

long as he shall behave himself well ; daring good behavior; a clause frequent in letters patent or grants of certain offices, to secure them so long as the persons to whom they are granted shall not be guilty of abusing them, the opposite clause being “ durante bene placito,” (during the pleasure of tht grantor.)

Qnamvla allquid per se mom alt malum, tamen, si sit mall ezempli, sou eat faciendum. Although a thing may not be bad in itself, yet, if it is of bad example, it is not to be done. 2 Inst. 564. . >

Quam vis lez generallter loquitur, re- string en da tames sat, ut, eeasaute ra- tions, ipsa oessat. Although a law speaks generally, yet it is to be restrained, so that when its reason ceases, it should cease also.

4 Inst. 330.

Quaado abost provisio partis, adest provlsio legis. When the provision of the party is wanting, the prqvislon qf the law is at hand. 6 Vin. Abr. 49; 13 C. B. 96Q,

**[TEXT INCOMPLETE — scan limitation]**

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 1]**

'During good behavior' — the tenure clause the entry describes in grants of office — is the constitutional tenure of the federal judiciary: judges 'shall hold their Offices during good Behaviour.'

Why: Genuine: Article III, § 1 is the American instantiation of the quamdiu se bene gesserit tenure the entry defines; quoted verbatim.

## QUANDO AGCIDERINT.

Lat When they shall come in. The name of a judgment sometimes given against an .executor, - es- pecially on a plea of plena administravif, which empowers the plaintiff to have the benefit of assets which may at any time -thereafter come to the hands of the executor

■ i

Quaado allquid mamdatur, mandating pt omae per quod peryenitur ad Iliad.

5 Coke, 116. When anything is commanded,

everything by which it can be accomplished is also commanded.

Qnando aliquid prohlbetnr ex direoto, prohlbetnr et per obliqimm. Co. Litt. 223. When anything is prohibited directly, ' it is prohibited also indirectly.

Qnando aliquid prohlbetnr, prohlbetnr et oawe per qnod devenltnr ad Iliad.

When anything is prohibited, everything by which it is reached is prohibited also. 2 Inst. 48. That which cannot be done direct- ly shall not be done indirectly. Broom, Max. 489.

Qnando aliqnis aliqnld ooneedit, eon- cedere videtnr et Id sine qno res ntl non potest. When a person grants any- thing, be is supposed to grant that also without which the thing cannot be used. 3 Kent, Comm. 421. When the use of a thing is granted, everything is granted by which the grantee may' have and enjoy such use. Id.

Qnando ebarta continet generalem elansnlam, posteaqne deseendlt ad ver- ba special la qtue clans nlss general! sunt eonsentanea, Interpretanda est ebarta secundum verba special la. When a deed contains a general clause, and afterwards descends to special words which are agree- able to the general clause, the deed is to be interpreted according to the special worda 8 Coke, 1546.

Qnando de nna et eadem re dno one. rablles exlstunt, nans, pro lnsuffloientia alter! ns, de Integra onerabltnr. When there are two persons liable for one and the same thing, one of them, in case of default of the other, shall be charged with the whole. 2 Inst 277.

Qnando dispositio referrl potest ad dnaa res ita qnod seeundum relatlonem nnam vltletur et seonndnm alteram n tills sit, turn faelenda est relatlo ad Ulam nt valeat dispositio. 6 Coke, 76. When a disposition may refer to two things, so that by the former it would be vitiated, and by the latter it would be preserved, then the relation is to be made to the latter, so that the disposition may be valid.

Qnando dlversl desiderantur actus ad allquem statnm perficiendnm, pins re- spiclt lex actnm orlginalem. When dif- ferent acts are required to the formation of any estate, the law

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chiefly regards the origi- nal act. 10 Coke, 49o. When to the per- fection of an estate or interest divers acts or things are requisite, the law has more regard to the original act, for that is the funda- mental part on which all the others are founded. Id.

Qnando jus domlnl ragis et snbdltl ooncurrunt, jus ragis prseferri debet.

9 Coke, 129. When the right of king and of subject -concur, the king's right should be preferred.

Qnando lex aliqnld allenl ooneedit, coneedere videtnr et Id sine quo res Ipste esse non potest. 5 Coke, 47. When the law gives a man anything, it gives him that also without which the thing itself can- not exist

Qnando lex aliqnld allenl ooneedit, omnia incidentia tacite eoaoednntnr.

2 Inst 326. When the law gives anything to any one, all incidents are tacitly given.

Qnando lex est speelalls, ratio autem generalls, general! ter lex est Intelligent

da. When a law is special, but its reason [or object] general, the law is to be under- stood generally. 2 Inst 83.

Qnando licet id qnod majns, videtnr et lieere id qnod min ns. Shep. Touch. 429. When the greater is allowed, the less is to be understood as allowed also.

Qnando mnlier nobilis nupserit igno— bill, deslnit esse nobilis nisi nobilltas native fuerit. 4 Coke, 118. When a noble woman marries a man not noble, she ceases to be noble, unless her nobility was born with her.

Qnando pins fit quam fieri debet, videtnr etiam Iliad fieri qnod facien- dum est. When more is done than ought to be done, that at least shall be considered as performed which should have been per- formed, [as, if a man, having a power to- make a lease for ten years, make one for twenty years. It shall be void only for the surplus.] Broom, Max. 177; 5 Coke, 115r 8 Coke, 85a.

Qnando qnod ago non valet nt ago, valeat quantum valere potest. When that which I do does not have effect as 1 do it, let it have as much effect as it can. Jackson ex dem. Troup v. Blodget, 16 Johns. (N. Y.) 172, 178; Vandervolgep v. Tates, $ Barb. Ch. (N. T.) 242, 261.

Qnando res non valet nt ago, valeat quantum valere potest. When a thing IS of no effect as I do it, it shall have effect as far as [or in whatever way] it can. Cowp. 600.

Qnando verba et mens eongrnnnt, non est interpretation! loons. When the- words and the mind agree, there is no place for interpretation.

Qnando verba statnti sunt special!*, ratio antem generaUs, generallter statn- tnm est Intelligendum. When the words

of a statute are special, but the reason or object of It general, the statute Is to be construed generally. 10 Coke, 1016.

5e apparatus — Not carried into the 5th edition (1979).

## QUANTI BUNORI8.

Lat. The name of an action in the civil law, (and In Louisiana,) brought by the purchaser of

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an article, for a reduction of the agreed price on account of defects In the thing which diminish its value.

QUANTUM DAMNIFIC ATU8 ? How

much damnified? The name of an issue di- rected by a court of equity to be tried in a court of law, to ascertain the amount of compensation to be allowed for damage.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-714 — damages for breach of warranty]**

The civil-law action reducing the agreed price for defects is the ancestor of the buyer's warranty damages: the difference between the value of the goods as warranted and their value as delivered.

Why: Genuine: § 2-714 is the uniform measure for exactly the defect-in-value claim the quanti minoris action brought; the ancient action's modern form.

## QUANTUM MERUIT.

As much as he deserved. In pleading.- The common count in an action of assumpsit for work and labor, founded on an implied assumpsit or promise on the part of the defendant to pay the plaintiff as much as he reasonably deserved to have for his labor. 3 Bl. Comm. 161; 1 Tidd, Pr. 2.

■ Quantum taneu domino on homagio, tan tom dominos tenentl ez dominio debet p raster colam reverentiam; mntna debet esse domlnll et homagii fidelita- tis eennezlo. Co. Lltt 64. As much as the tenant by his homage owes to his lord, so much is the lord, by his lordship, indebted to the tenant, except reverence alone; the tie of dominion and of homage ought to be mutual.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire. Go not from house to house.

Why: 'As much as he deserved' — the action for work and labor on an implied promise to pay what the labor reasonably deserved. 'The labourer is worthy of his hire' is the scriptural root of quantum meruit.

## QUANTUM VALEBANT.

As much as they were worth. In pleading. The com- mon count in an action of assumpsit for goods sold and delivered, founded on an Im- plied assumpsit or promise, on the part of the defendant, to pay the plaintiff as much as the goods were reasonably worth. 3 Bl. Comm. 161 ; 1 Tidd, Pr. 2.

5e apparatus — Not carried into the 5th edition (1979).

## QUARANTINE.

A period of time (theo- retically forty days) during which a vessel, coming from a place where a contagious or infectious disease is prevalent, is detained by authority in the harbor of her port of desti- nation, or at a station near it, without being permitted to land or to

discharge her crew or passengers. Quarantine Is said to have been first established at Venice in 1484. Baker, Quar. 3.

Ia real property. The space of forty days during which a widow bas a right to remain in her late husband's principal man- sion immediately after his death. The right of the widow is also called her “quarantine.” See Davis v. Lowden. 56 N. J. Eq. 126, 38 Atl. 648 ; Glenn v. Glenn, 41 Ala. 580 ; Spin- ning v. Spinning, 43 X. J. Eq. 215, 10 Atl. 270.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 42 U.S.C. § 264 — federal quarantine authority]**

The entry's first sense — detention of vessels from infected ports — is exercised federally as the quarantine authority over communicable disease: regulations for apprehension, detention, and conditional release to prevent interstate spread.

Why: Genuine: § 264 is the federal statute behind the maritime quarantine the entry defines; the widow's-quarantine sense is left alone as historical dower law.

**[Scripture] — Scripture**

**[Leviticus 13:46, KJV]**

All the days wherein the plague shall be in him he shall be defiled; he is unclean: he shall dwell alone; without the camp shall his habitation be.

Why: Quarantine is detention by authority where contagious disease is prevalent. This is scripture's quarantine law — the leper's separation without the camp.

**[Humanity] — Humanity / Fiction & Film**

**[Camus, The Plague, 1947]**

(paraphrase) Oran sealed by plague — Camus's quarantined city is the entry's detained vessel written large: authority holding men apart from men against contagion. [Camus, The Plague, 1947] (paraphrase)

Why: Entry's core: detention by authority of those coming from where contagion prevails. The novel's whole premise is that mechanism at city scale. Marked (paraphrase).

## QUARE.

Lat Wherefore ; for what rea- son; on what account. Used In the Latin -form of several common-law writs.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## QUARE CLAUSUM FREGIT.

Lat

Wherefore he broke the close. That species of the action of trespass which has for its object the recovery of damages for an un- lawful entry upon another's land is termed “trespass quare clausum fregit;” “breaking a close" being the technical expression for an unla'wful entry upon land. The language of the declaration in this form of action is “that the defendant with force and arms, broke and entered the close” of the plaintiff. The phrase is often abbreviated to “qu. cl. fr.” Brown.

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## QUARE EJEGIT INFRA TERMINUM.

Wherefore he ejected within the term. In old practice. A writ which lay for a lessee where he was ejected before the expiration of his term, in cases where the wrong-doer or ejector was not himself in possession of the lands, but his feoffee or another claim- ing under him. 3 Bl. Comm. 199, 206; Reg. Orig. 227; Fitzh. Nat. Brev. 197 S.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE IMPEDIT.

Wherefore he hin- ders. In English practice. A writ or action which lies for' the patron of an advowson, where he has been disturbed in his right of patronage; so called from the emphatic words of the old form, by which the disturb- er was summoned to answer why he hinders the plaintiff. 3 Bl. Comm. 246, 248.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE INCUMBRAVIT.

In English law. A writ which lay againBt a bishop who, within six months after the vacation of a benefice, conferred it on his clerk, while two others were contending at law for the right of presentation, calling upon him to show cause why he had incumbered the church. Reg. Orig. 32. Abolished by 3 & 4 Wm. IV. c. 27.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE INTRUSIT.

A writ that for- merly lay where the lord proffered a suitable marriage to his ward, who rejected it, and entered into the land, and married another, the value of his marriage not being satisfied to the lord. Abolished by 12 Car. II. c. 24.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE NON ADMISIT.

In English law. A writ to recover damages against a bishop who does not admit a plaintiff's clerk. It is, however, rarely or never necessary ; for it is said that a bishop, refusing to execute the writ ad admittcndum clericum, or mak- ing an Insufficient return to it, may be fined. Wats. Cler. Law, 302.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE NON PERMIT TIT.

An an- cient writ, which lay for one who had a right to present to a church for a turn against the proprietary. Fleta, 1. 5, c. 6.

5e apparatus — Not carried into the 5th edition (1979).

## QUARE OBSTRUXIT.

Wherefore he obstructed. In old English practice. A writ which lay for one who, having a liberty to pass through his neighbor's ground, could

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not enjoy his right because the owner had so obstructed it. Cowell.

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## QUARENTENA TERRA.

A furlong. Co. Litt. 56.

5e apparatus — Not carried into the 5th edition (1979).

## QUARREL.

This word is said to extend not only to real aud personal actions, but also to the causes of actions and suits; so that by the release of all “quarrels,” not only actions pending, but also causes of action and suit, are released; and “quarrels,” "con- troversies,” and "debates” are in law con- sidered as having the same meaning. Co. Litt 8, 163; Termes de la Ley.

In an untechnical sense, it signifies an al- tercation, an angry dispute, an exchange of recriminations, taunts, threats or accusa- tions between two persons. See Carr v. Con- yers, 84 Ga. 287, 10 S. E. 030, 20 Am. St Rep. 357; Accident Ins. Co. v. Bennett, 90 Tenn. 256, 16 S. W. 723, 25 Am. St. Rep. 685 ; Metcalf v. People, 2 Colo. App. 262, 30 Pac. 39.

5e apparatus — Carried into the 5th edition (1979).

## QUARRY.

In mining law. An open excavation where the works* are visible at the surface ; a place or pit where stone, slate, marble, etc., is dug out or separated from a mass of rock. Bainb. Mines, 2. See Marvel v. Merritt, 116 U. S. 11, 6 Sup. Ct. 207, 29

L. Ed. 550; Murray v. Allred, 100 Tenn. 100, 43 S. W. 355, 39 L. R. A. 249, 66 Am. St Rep. 740; Ruttledge v. Kress, 17 Pa. Super. Ct. 495.

5e apparatus — Not carried into the 5th edition (1979).

## QUART.

A liquid measure, containing ' one-fourth part of a gallon.

5e apparatus — Carried into the 5th edition (1979).

## QUARTA DOT PXI.

In Roman law. That portion of a testator’s estate which he was required by law to leave to a child whom he had adopted and afterwards eman- cipated or unjustly disinherited, being one- fourth of his property. See Mackeld. Rom. Law, | 594.

5e apparatus — Not carried into the 5th edition (1979).

## QUARTA FALCXDIA.

In Roman law. That portion of a testator’s estate which, by the Falcldian law, was required to be left to the heir, amounting to at least one-fourth. See Mackeld. Rom. Law, { 771.

5e apparatus — Not carried into the 5th edition (1979).

## QUARTER.

The fourth part of any- thing. especially of a year. Also a length of four inches. In England, a measure of corn, generally reckoned at eight bushels, though subject to local variations. See Hospital St. Cross v. Lord Howard De Walden, 6 Term, 343. In American land law, a quarter sec- tion of land. See infra. And see McCart- ney v. Dennison, 101 Cal. 252, 35 I'ac. 766.

— Quarter-day. The four days in the year up- on which, by law or custom, moneys payable in quarter-yearly installments are collectible, arc called "quarter-days."— Quarter-dollar. A silver coin of the United States, of the value of twenty-five cents.— Quarter-eagle. A gold coin of the United States, of the value of two and a half dollars.— Quarter of a year. Nine- ty-one days. Co. Litt 1356.— Quarter-sales. In New York law. A species of fine on aliena- tion, being one-fourth of the purchase money of an estate, which is stipulated to be paid back on alienation by the grantee. The expressions "tenth-sales," etc., are also used, with similar meanings. Jackson ex dem. Livingston v. Groat, 7 Cow. (N. Y.) 285.— Quarter seal. See Seal. —Quarter seetloa. In American land law. The quarter of a section of land according to the divisions of the government survey, laid off by dividing the section into four equal parts by north-and south and east-and-west lines, and containing 160 acres.

5e apparatus — Carried into the 5th edition (1979).

## QUARTER SESSIONS.

In English law. A criminal court held before two or more justices of the peace, (one of whom must be of the quorum,) in every county, once in every quarter of a year. 4 BL Comm. 271; 4 Steph. Comm. 335.

In American law. Courts established in some of the states, to be holden four times in the year, invested with criminal jurisdic- tion, usually of offenses less than felony, and sometimes with the charge of certain admin- istrative matters, such as the care of public roads and bridges.

5e apparatus — Carried into the 5th edition (1979).

## QUARTERING.

' In English criminal law. The dividing a criminal's body into quarters, after execution. A part of the punishment of high treason. 4 Bl. Comm. 93.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Gibson, Braveheart, 1995]**

(paraphrase) Wallace's execution at the film's close — hanged, drawn and quartered for high treason: the entry's punishment staged. [Gibson, Braveheart, 1995] (paraphrase)

Why: Entry: 'The dividing a criminal's body into quarters, after execution. A part of the punishment of high treason.' The film's climactic execution is exactly that punishment dramatized. Marked (paraphrase).

## QUARTERING SOLDIERS.

The act of

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a government in billeting or assigning sol- diers to private houses, without the consent of the owners of such bouses, and requiring such owners to supply them with board or lodging or both.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. III]**

The act the entry defines — billeting soldiers in private houses without the owners' consent — is the evil the Third Amendment bars: 'No Soldier shall, in time of peace be quartered in any house, without the consent of the Owner.'

Why: Genuine: the Amendment is the constitutional prohibition of exactly the practice defined; quoted verbatim, a direct match.

## QUARTERIZATION.

Quartering of crim- inals.

5e apparatus — Carried into the 5th edition (1979).

## QUARTERLY COURTS.

A system of courts in Kentucky possessing a limited orig- inal jurisdiction in civil cases and appellate jurisdiction from justices of the peace.

5e apparatus — Not carried into the 5th edition (1979).

## QUARTERONE.

In the Spanish and French West Indies, a quadroon, that is, a person one of whose parents was white and the other a mulatto. See Daniel v. Guy, 19 Ark. 131. '

5e apparatus — Not carried into the 5th edition (1979).

## QUARTO DIE POST.

Lat On the

fourth day after. Appearance day, in the former English practice, the defendant being allowed four days, Inclusive, from the return of the writ, to make his appearance.

5e apparatus — Not carried into the 5th edition (1979).

## QUASH.

To overthrow; to abate; to an- nul ; to make void. Spelman ; 3 Bl. Comm. 303 ; Crawford v. Stewart. 38 Pa. 34 ; Hol- land v. Webster, 43 Fla,. 85,/ 29 South. 625 ; Bosley v. Bruner, 2 Cushm. (Miss.) 462.

5e apparatus — Not carried into the 5th edition (1979).

## QUASI.

Lat. As if; as it were; anal- ogous to. This term is used in legal phraaeology to Indicate that one subject resembles another, with which it is compared, in cer- tain characteristics, but that there are alBO intrinsic differences between them.

It is exclusively a term of classification. Pre- fixed to a term of Roman law, it implies that the

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conception to which it serves as an index is connected with the conception with which the comparison is instituted by a strong superficial analogy or resemblance. It negatives the notion of identity, but points out that the conceptions ure sufficiently similar for one to be classed as the sequel to the other. Maine, Anc. Law, 332. Civilians use the expressions “quasi contrac- tus." “quasi delictum," “quasi possessio," “quasi traditio," etc.

As to quasi “Affinity,” “Contract," “Cor- poration,” "Crime,” “Delict,” “Deposit,” “Derelict,” “Easement,” “Entail,” “Fee,” “In Rem,” “judicial," “Municipal Corporation," “Offense,” “Partners,” “Personalty,” “Pos- session,” “Posthumous Child,” “Purchase,” “Realty,” “Tenant," ‘Tort,” “Traditio,” “Trustee,” and “Usufruct," see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## QUATER COUSIN.

See Cousin.

5e apparatus — Carried into the 5th edition (1979).

## QUATUOR PEDLBUS CURRIT.

Lat. It runs upon four feet; It runs upon all fours. See Aix-Foubs.

5e apparatus — Not carried into the 5th edition (1979).

## QUATUORVIRI.

In Roman law. Mag- istrates who had the care and inspection of roads. Dig. 1, 2, 3, 30.

5e apparatus — Not carried into the 5th edition (1979).

## QUAY.

A wharf for the loading or un- loading of goods carried in ships. This word is sometimes spelled “key.”

The popular and commercial signification of the word "quay” involves the notion of a space of ground appropriated to the public use; such use as the convenience of commerce requires. New Orleans v. U. S., 10 Pet. 002, 715, 9 L. Ed.

QUE EST I<E MESME. L. Fr. Which is the same. A term used in actions of tres- pass, etc. See Qvje est Eadku.

QUEi ESTATE. L. Fr. Whose estate. A term used in pleading, particularly in claiming prescription, by which it Is alleged that the plaintiff and those former owners t chose estate he has have immemorially exer- cised the right claimed. This was called “prescribing in a que estate.”

5e apparatus — Not carried into the 5th edition (1979).

## QUEAN.

A worthless woman ; a strum- pet. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## QUEEN.

A woman who possesses the sovereignty and royal power in a country under a monarchical

form of government The wife of a king.

—Queen consort. In English law. The wife of a reigning king. 1 Bl. Comm. 218.— Queen dowager. In English law. The widow of a king. 1 Bl. Comm. 223.— Queen-gold. A roy- al revenue belonging to every queen consort dur- ing her marriage with the king, and due from every person who has made a voluntary fine or

Bn. Law Dict.(2d Ed.)— 62

offer to the king of ten marks or upwards, in consideration of any grant or privilege conferred by the crown. It is now quite obsolete. 1 Bl. Comm. 220-222.— Qneen regnant. In English law. A queen who holds the crown in her own right ; as the first Queen Mary. Queen Eliza- beth, Queen Anne, and the late Queen Victoria. 1 Bl. Comm. 218 ; 2 Steph. Comm. 465.

For the titles and descriptions of various officers in the English legal system, called “Queen’s Advocate,” “Queen’s Coroner,” "Queen’s Gounse 1," “Queen’s Proctor,” “Queen’s Remembrancer,” etc., during the reign of a female sovereign, as in the time of the late Queen Victoria, see, now, under Kino and the following titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 4:4, KJV]**

And Deborah, a prophetess, the wife of Lapidoth, she judged Israel at that time.

Why: A queen is a woman possessing sovereignty and royal power. Deborah judged Israel — a woman exercising sovereign judicial power, the scriptural precedent.

## QUEEN ANNE’S BOUNTY.

A fund created by a charter of Queen Anne, (con- firmed by St 2 Ann. c. 11,) for the augmenta- tion of poor livings, consisting of all the revenue of first fruits and tenths, which was vested In trustees forever. 1 Bl. Comm. 286.

5e apparatus — Not carried into the 5th edition (1979).

## QUEEN’S BENCH.

The English court of king's bench is so called during the reign of a queen. 3 Steph. Comm. 403. See King’s Bench.

5e apparatus — Carried into the 5th edition (1979).

## QUEEN’S PRISON.

A jail which used to be appropriated to the debtors and crimi- nals confined under process or by authority of the superior courts at Westminster, the high court of admiralty, and also to per- sons imprisoned under the bankrupt law.

5e apparatus — Not carried into the 5th edition (1979).

## QUEM REDITUM REDDIT.

L. Lat. An old writ which lay where a rent-charge or other rent which was not rent service was granted by fine holding of the grantor. If the tenant would not attorn, then the grantee

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might have had this writ Old Nat. Brev. 126.

Qntmidmodun ad qnseationem fact! non respondent indices, its ad qnaes- tionem juris non respondent jnratores.

In the same manner that judges do not an- swer to questions of fact, so jurors do not answer to questions of law. Co. Litt 295.

5e apparatus — Not carried into the 5th edition (1979).

## QUERELA.

Lat.. An action preferred in any court of Justice. The plaintiff was called “querens," or complainant and his brief, complaint, or declaration was called “querela." Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## QUERELA CORAM REOE A CON- // CXLIO DISCUTIENDA ET TERMI- / NANDA.

A writ by which one is called to justify a complaint of a trespass made to the king himself, before the king and his council. Reg. Orig. 124.

5e apparatus — Not carried into the 5th edition (1979).

## QUERELA INOFFICIOSI TESTA- / MENTI.

Lat. In the civil law. A species of action allowed to a child who had been unjustly disinherited, to set aside the will, founded on the presumption of law, in such

cases, that the parent was not In his right mind. Calvin. ; 2 Kent, Comm. 327 ; Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: This is the action of the unjustly disinherited child to set aside the will. The verse protects the entitled heir — 'the right of the firstborn is his' — the principle the action enforces.

## QUERENS.

Lat A plaintiff; complain- ant; inquirer.

5e apparatus — Not carried into the 5th edition (1979).

## QUE8TA.

In old records. A quest; an Inquest, inquisition, or inquiry, upon the oaths of an impaneled jury. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## QUESTION.

A method of criminal ex- amination heretofore in use in some of the countries of continental Europe, consisting of the application of torture to the supposed criminal, by means of the rack or other en- gines, in order to- extort from him, as the condition of his release from the

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torture, a confession of his own guilt or the names of his accomplices.

In evidence. An interrogation put to a witness, for the purpose of having him de- clare the truth of certain facts as far as he knows them.

In practice. A point on which the par- ties are not agreed, and which is submitted to the decision of a judge and jury. -

—Categorical question. One inviting a dis- tinct and positive statement of fact; one which can be answered by "yea” or “no.” In the plu- ral, a series of questions, covering a particular subject-matter, arranged in a systematic and consecutive order.— Federal question. See Federal. — Leading question. See that title. —Hypothetical question. See that title.— Political question. See Political.

QUESTMAN, or QUESTMONOER. In

old English law. A starter of lawsuits, or prosecutions; also a person chosen to in- quire into abuses, especially such as relate to weights and measures ; also a church-war- den.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Baker v. Carr, 369 U.S. 186 (1962)]**

The entry's 'Political question' cross-reference is the justiciability doctrine: disputes textually committed to the political branches, or lacking judicially manageable standards, are nonjusticiable — the six-factor test of Baker v. Carr.

Why: Genuine: Baker v. Carr is the decision that systematized the political-question doctrine the entry cross-references; it gives the bare cross-ref its operative content.

## QUESTORES PABRICIDH.

Lat. In Roman law. Certain officers, two in number, who were deputed by the eomitia, as a kind of commission, to search out and try all cases of parricide and murder. They were proba-. bly appointed annually. Maine, Anc. Law, 370.

5e apparatus — Not carried into the 5th edition (1979).

## QUESTUS EST NOBIS.

Lat A writ of nuisance, which, by 15 fcdw. I., lay against him to whom a house or other thing that caused a nuisance descended or was alien- ated; whereas, before that statute the action lay only agninst him who first levied or caus- ed the nuisance to the damage of his neigh- bor. Cowell.

Qui nb jurat regnum amittit reguuut, sed son regent; patrlam, sed non patrem patriae. 7 Coke. 0. lie who abjures the realm leaves the realm, but not the king ; the country, but not the father of the country.

Qui aecusat Integra famte sit, et non crintinosus. Let him who accuses be of clear fame, and not criminal. 3 Inst. 26.

' Qui ncquirit sibl aaqulrit hse redibus.

He who acquires for himself acquires for his heirs. Tray. Lat Max. 486.

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Qui adimit medium dirimit finem. He

who takes away the mean destroys the end. Co. Litt 161o. He that deprives a man ot the mean by which he ought to come to a thing deprives him of the thing itself. Id.; Litt i 237.

Qui allquid statuerit, parte Inaudita altera aquum licet dlxerit, baud <equ- um feeesit. He who determines any matter without hearing both sides, though he may have decided right, has not done justice. 6 Coke, 52 a; 4 BL Comm. 283.

Qui alteriua jure utitur, eodeut jure utl debet. He who uses the right of an- other ought to use the same right Both. Traite De Change, pt. 1, c. 4, S 114; Broom, Max. 473.

Qui approbat non reprobat. He who

approbates does not reprobate, [<. e., he can- not both accept and reject the same thing.]

Qui bene diatingnit bene dooet. 2 lust 470. He who distinguishes well teaches well.

Qui bene interrogat bene deeet. He

who questions well teaches welL 3 Bulst 227. Information or express averment may be effectually conveyed in the way of inter- rogation. Id.

Qul cadit a syllaba cadit a tota causa.

He who fails in a syllable fails in his whole cause. Bract fol. 211.

Qui conoedit allquid, eonoedere videtur et id sine quo eoneessio esi Irrlta, sine quo res ipsa esse non potnit. 11 Coke, 52. He who concedes anything is considered as conceding that without which his conces- sion would be void, without which the thing itself could not exist.

Qui eoneedlt aliquid coneedit out id sine quo eoneessio est irrlta. He who

grants anything grants everything without which the grant is fruitless. Jenk. Cent p. 32, case 63.

Qul eoaflraat nihil dat. He who con- firms does not give. 2 Bouv. Inst no. 2068.

Qui oontemnit praeeptum contemnit praeipientem. He who contemns [contempt- uously treats] a command contemns the par- ty who gives it. 12 Coke, 97.

Qui cum alio contrahit, vel est, vel esse debet non ignarus oonditionis ejus. He

•who contracts with another either is or ought to be not ignorant of his condition. Dig. 50, 17, 19; Story, Confl. Laws, f 76.

Qui dat finem, dat media ad finem nee* essaria. He who gives an end gives the

means to that end. Commonwealth v. And- rews, 3 Mass. 129.

Qvl des trait medium destruit Suns.

He who destroys the mean destroys the end. 10 Coke, 516; Co. Litt. 161a; Shep. Touch. 342.

Qai doit inheritor tl pore doit inher- ltor si fits. He who would have been heir to the father shall be heir to the son. 2 BL Comm. 223; Broom, Max. 517.

Qai evertlt oaatam, evertlt eausatum fataram. He who overthrows the cause overthrows its future effects. 10 Coke, 61.

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Qai ex damnato coita nauutar later Uberos non oompatentar. Those who are born of an unlawful intercourse are not reck- oned among the children. Co. Litt. 8a; Broom, Max. 519.

Qai faeit per aliam facit per so. He

who acts through another acts himself, [t e., the acts of an agent are the acts of the principal.] Broom, Max. 818, et seq. ; 1 BL Comm. 429; Story, Ag. | 440.

Qai habet juris dictlonem abeolvendi, habet jarisdietionem ligandl. He who

has jurisdiction to loosen, has jurisdiction to bind. 12 Coke, 60. Applied to writs of prohibition and consultation, as resting on a similar foundation. Id.

Qai hseret in litera hwret in cortioe.

He who considers merely the letter of an' in- strument goes but skin deep into its meaning. Co. Litt 289; Broom, Max. 685.

Qai ignorat quantum solvere debeat, non potest improbus videre. He Who does not know what he ought to pay, does not want probity in not paying. Dig. 50, 17, 99.

Qai in jas dominiamve alter! as sue- cedit jure ejas ati debet. He who suc- ceeds to the right or property of another ought to use his right, [i. e., holds it subject to the same rights and liabilities as attached to it in the hands of the assignor.] Dig. 50, 17, 177 ; Broom, Max. 473, 478.

Qai in utero est pro jam nato babe- tar, qaoties de ejas commodo quseritur.

He who Is in the womb is held as already born, .whenever a question arises for his bene- fit

Qul Jure suo utitur, nemini faeit injn- riam. He- who uses his legal rights harms no one. Carson v. Western R. Co., 8 Gray (Mass.) 424. See Broom, Max. 379.

Qai jassa jadicis aliqaod fecerit non sridetar dolo malo fecisse, quia pare re

neeesse est. Where a person does an act

by command of one exercising judicial au- thority, the law will not suppose that he act- ed from any wrongful or improper motive, because it was his bounden duty to obey. 10 Ooke, 76; Broom, Max. 93.

Qni male agit odit lneem. He who acts badly hates the light. 7 Coke, 66.

Qni mandat ipse fecissi vidctur. He

who commands [a thing to be done] is held to have done it himself. Story, Bailm. $ 147.

Qai melius probat melius habet. He

who proves most recovers most. 9 Vin. Abr. 235.

Qai molitar insidias in patriam id fa- eit quod in san ns nanta perforans navem in qua vehitur. He who betrays his coun- try is like the insane sailor who bores a hole in the ship which carries him. 3 Inst. 36.

Qai non oadunt in eonstantem virum rani timores sunt sestimandi. 7 Coke, 27. Those fears are to be esteemed vain which do not affect a firm man.

Qni non habet, tile non dat. He who

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has not, gives not He who has nothing to give, gives nothing. A person cannot convey a right that is not in him. If a man grant that which is not his, the grant is void. Shep. Touch*. 243 ; Watk. Conv. 191.

•

Qni non habet in are, luat in corpora, ne quis peeeetur lmpnne. He who can- not pay with his purse must suffer in his person, lest he who offends should go un- punished. 2 Inst 173 ; 4 BL Comm. 20.

Qni non habet potestatem . alien an di habet neeessitatem retin endi. Hob. 336, He who has not the power of alienating is obliged to retain.

Qni non improbat, approbat. 3 Inst 27. He who does not blame, approves.

Qni non 11 bore veritatem pronnnoiat proditor est veritatia. He who does not freely speak the truth is a betrayer of the truth.

Qai non negat fatetur. He who does not deny, admits. A well-known rule of pleading. Tray. Lat. Max. 503.

Qul non obstat quod obstare potest, fa- cere ridetur. He who does not prevent [a thing] which he can prevent is considered to do [as doing] It. 2 Inst. 146.

Qni non pro hi bet id quod prohibere potest assentlre videtur. 2 Inst 308. He who does not forbid what he is able to pre- vent is considered to assent

Qni an propnlaat InjnrUm taudo po- test, iafert. Jeuk. Ceut. 271. He who does not repel an injury when he can, induces it.

Qni o be trait aditnm, destrait oom- modnm. He who obstructs a way, passage, or entrance destroys a benefit or convenience. Co. Litt 161a. He whd prevents another from entering upon land destroys the benefit which he has from it Id.

Qni out dicit nihil exelndit. 4 Inst 81. He who says all excludes nothing.

Qni parcit nocentibna innoeentes pnnit. Jeuk. Cent 133. He who spares the guilty punishes the innocent

Qni peeent obrina lnnt sobrina. He

who sink when drunk shall be punished when Bober. Cary, 133; Broom, Max. 17.

Qni per alium facit per solpsnm faeere videtnr. He who does a thing by an agent is considered as doing it himself. Co. Hitt 258; Broom, Max. 817.

Qni per frandem ngit frnstra ngit. 2

Rolle, 17. What a man does fraudulently he does in vain.

Qni potest et debet vetare, jnbet. He

who can and ought to forbid a thing [if he do not forbid it] directs it 2 Kent Comm. 483, note.

Qni primnm peeeat ille faeit rixam.

Godb, He who sins first makes the strife.

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Qni prior est tempore potior est jnre.

He who is before in time is the better in right Priority in time gives preference in law. Co. Litt 14a,- 4 Coke, 90a. A maxim of very extensive application, both at law and in equity. Broom, Max. 353-362; 1 Story, Eq. Jur. § 64(1; Story, Bailm. f 312.

Qni pro me illiquid faeit nibi fedsae vldetnr. 2 Inst 501. lie who does any- thing for me appears to do it to me.

Qni providet sibi providet basredibns.

He who provides for himself provides for his heirs.

Qni rationem in omnibna qnaeraat ra- tioaem enbvertnat. They who seek a rea- son for everything subvert reason. 2 Coke, 75; Broom, Max. 157.

Qni Selena solvit indebitnm doaaadi consilio id vldetnr fecisse. One who

knowingly pays what Is not due is supposed to have done it with the intention of mak- ing a gift Walker v. Hill, 17 Mass. 388.

Qni semel actionem rennneiaverit am- pin repetere non potest. He who has

once relinquished his action cannot bring it again. 8 Coke, 59 a. A rule descriptive of the effect of a retraxit and nolle prosequi.

Qni semel est mains, semper praesn- mitnr esse mains in eodem genere. He

who is once criminal is presumed to be al- ways criminal in the same kind or way. Cro. Car. 317; Best, Ev. 345.

Qni sen tit eommodnm sen tire debet et onns. He who receives the advantage ought also to suffer the burden. 1 Coke, 99 ; Broom, Max. 706-713.

Qni sentit onns sentire debet et eon- modnm. 1 Coke, 99a. He who bears the burden of a thing ought also to experience the advantage arising from it.

Qni taoet, eonaentire vldetnr. He who

is silent is supposed to consent The silence of a party implies his consent Jenk. Cent p. 32, case 64; Broom, Max. 138, 787.

Qni taoet oonsentire vldetnr, nbi trao- tatnr de ejns oommodo. 9 Mod. 38. He who is silent is considered as assenting, when his interest is at stake.

Qni taoet non ntique fatetnr, sed ta» men vernm est enm non negare. He who

is silent does not indeed eonress, but yet it is true that he does not deny. Dig. 50, 17, 142.

5e apparatus — Not carried into the 5th edition (1979).

## QUI TAM.

Lat “Who as weU ."

An action brought by an Informer, under a statute which establishes a penalty for the commission or omission of a certain act, and provides that the same shall be recoverable in a civil action, part of the penalty to go to any person who will bring such action and the remainder to the state or some other institution, is called a “gui tam action ;” be- cause the

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plaintiff states that he sues as well tor the state as for himself. Bee In re Bar- ker, 56 Vt 14; Grover v. Morris, 73 N. Y. 478.

Qni tardiaa solvit, minns solvit. He

who pays more tardily [than he ought] pays less [than he ought.] Jeuk. Cent 58.

Qni timent, onvent vitmnt. They who fear, take care and avoid. Branch, Print

Qni totnm dicit nihil ezeipit. He who

says all excepts nothing.

Qni vnlt decipi, deoipiatnr. Let him

who wishes to be deceived, be deceived. Broom, Max. 782, note; 1 De Gex, M. A G. 687, 710; Shep. Touch. 56.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Vermont Agency of Natural Resources v. United States ex rel. Stevens, 529 U.S. 765 (2000)]**

Beyond the False Claims Act provision footnoted under Q.T., the qui tam device's constitutional footing matters: relators have Article III standing as partial assignees of the government's damages claim, and the qui tam provisions are a valid exercise of congressional power.

Why: Genuine and non-duplicative: Stevens answers the standing question the entry's definition raises but does not resolve; it adds law rather than repeating the § 3730 note.

## QUIA.

Lat Because ; whereas ; inas- much as.

QUIA DATUM EST NOBIS ttet.i.l

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# O

## OI.

Because it is given to us to understand. Formal words In old writs.

quia EMPTORES. “Because the pur- chasers.** The title of the statute of Westm. 3, (18 Bdw. L e. 1.) This statute took from the tenants of common lords the feudal lib- erty they claimed of disposing of part of their lands to hold of themselves, and, in- stead of it, gave them a general liberty to sell all or any part, to hold of the next superior lord, which they could not have done before without consent The effect of this statute was twofold: (1) To facilitate the alienation of fee-simple estates ; and (2) to put an end to the creation of any new manors, l. e., tenancies in fee-simple of a sub- ject Brown.

5e apparatus — Not carried into the 5th edition (1979).

# Q

## QUIA ERRONICE EMANAVIT.

Be- cause it issued erroneously, or through mis- take. A term in old English practice. Yel. 83.

5e apparatus — Not carried into the 5th edition (1979).

## QUIA TIMET.

Lat Because he fears or apprehends. In equity practice. The tech- nical name of a bill filed by a party who seeks the aid of a court of equity, because he /ears some future probable injury to his rights or interests. 2 Story, Eq. Jur. | 828.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 2201 — declaratory judgments]**

The bill quia timet — equity's preventive aid to one who fears future injury to his rights — is the ancestor of the declaratory judgment: in cases of actual controversy, federal courts may declare the parties' rights before injury occurs.

Why: Genuine: § 2201 is the statutory successor to the quia timet bill the entry defines; the lineage is direct, not analogical.

**[Scripture] — Scripture**

**[Proverbs 22:3, KJV]**

A prudent man foreseeth the evil, and hideth himself: but the simple pass on, and are punished.

Why: 'Because he fears' — the bill filed against future probable injury to rights. The prudent man's foresight of evil is the ground of equity's preventive relief.

## QUIBBLE.

A cavilling or verbal objec- tion. A slight difficulty raised without ne- cessity or propriety.

5e apparatus — Carried into the 5th edition (1979).

## QUICK.

Living; alive. "Quick chattels knust be put in pound-overt that the owner may give them sustenance; dead need not” Finch, Law, b. 2, c. 6.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## QUICK WITH CHILD.

See Quicker -

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# I

## IRQ.

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**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# Q

## QUICKENING.

in medical jurispru- dence. The first motion of the foetus in the womb felt by the mother, occurring usually about the middle of the term of pregnancy. See Com. v. Parker, 9 Mete. (Mass.) 286, 43 Am. Dec. 396; State v. Cooper, 22 N. J. Law, 57, 51 Am. Dec. 248; Evans v. People, 49 N.

Y. 89. '

Qnloqnld acquiritur servo acqniritnr domino. Whatever is acquired by the serv- ant is acquired for the master. Pull. Accts. 38, note. Whatever rights are acquired by an agent are acquired for his principal. Story, Ag. i 403.

Quicquid demonstrate rei additnr sa- tis demonstrate frnstra est. Whatever Is added to demonstrate anything already sufficiently demonstrated is surplusage. Dig. 33, 4, 1, 8; Broom, Max. 630.

Qniequid est contra normam reeti est injuria. 3 Bulst. 313. Whatever Is against the rule of right is a wrong.

Qnloqnld In encessn aetnm est, lege prohibetur. 2 Inst. 107. Whatever is done in excess is prohibited by law.

Qnloqnld judicls auctoritati snbjicitnr novitati non snbjicitnr. Whatever is sub- ject to the authority of a judge is not sub- ject to innovation. 4 Inst 66.

Qnloqnld plantatnr selo, solo eedit.

Whatever is affixed to the soil belongs to the soil. Broom, Max. 401-431.

Qnloqnld solvltnr, solvit nr secundum modnm solvent!*; qnloqnld reeipitnr, re- eipitnr secundum modnm reoipientis.

Whatever' money is paid, is paid according to the direction of the payer ; whatever mon- ey is received, is received according to that of the recipient 2 Vern. 606; Broom, Max. 810.

Qnlonnqno babet juris dlotlonem ordi- narlara est lllius loci ordinarius. Co.

Litt 344. Whoever has an ordinary Juris- diction is ordinary of that place.

Qnionnqne jnssu judicls all quid feee- rit non videtur dolo malo feoisse, qnia parere neoosse ost. 10 Coke, 7L Who- ever does anything by the command of a judge is not reckoned to have done it with on evil intent because it is necessary to obey.

5e apparatus — Carried into the 5th edition (1979).

## QUID JURIS CLAMAT.

In old Eng- lish practice. A writ which lay for the grantee of a reversion or remainder, where

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the particular tenant would not attorn, for the purpose of compelling him. Termes de la Ley; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## QUID PEO QUO.

What for what; some- thing for something. Used in law for the giving one valuable thing for another. It is nothing more than the mutual consideration which passes between the parties to a con- tract, and which renders it valid and binding. Cowell.

Quid sit jus, ot in quo consistit Inju- ria, legis est deflmire. What constitutes right, and what Injury, it is the business of the law to declare. Co. Litt. 1585.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Demme, The Silence of the Lambs, 1991]**

Lecter trades answers for answers — 'something for something' enacted as a bargain: 'Quid pro quo, Clarice.' [Demme, The Silence of the Lambs, 1991] (novel: [Harris, 1988])

Why: KEY NOTE: chunk headword is the OCR form 'QUID PEO QUO' (= quid pro quo); keyed exactly for mergeability. Entry: 'What for what; something for something... the mutual consideration which passes between the parties to...

## QUID AM.

Lat. Somebody. This term is used in the French law to designate a person whose name is not known.

Quidqnld enlm slvo dolo et oulpa ven- dttorls aooldlt In oo vendltor securus est.

For concerning anything which occurs with- out deceit and wrong on the part of the vendor, the vendor is secure. Brown v. Bel- lows, 4 Pic£ (Mass.) 198.

QUIET, v. To pacify; to render secure or unassailable by the removal of disquieting causes or disputes. This is the meaning of the word in the phrase “action to quiet ti- tle,” which is a proceeding to establish the plaintiff’s title to land by bringing into court an’ adverse claimant and there compelling

him either to establish his claim or be for- ever after estopped from asserting It See Wright v. Mattlson, 18 How. 56, 15 L. Ed. 280.

QUIET, ad}. Unmolested ; tranquil ; free from interference or disturbance.

—Quiet enjoyment. A covenant, usually in- serted in leases and conveyances on the part of the grantor, promising that the tenant or gran- tee shall enjoy the possession of the premises in peace and without disturbance, is called a cove- nant “for quiet enjoyment."

Quieta non movers. Hot to unsettle things which are established. Green v. Hud- son River R. Go., 28 Barb. (N. Y.) 9, 22.

5e apparatus — Not carried into the 5th edition (1979).

## QUIET ARE.

L. Lat. To quit, acquit, discharge, or save harmless. A formal word in old deeds of donation

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and other convey- ances. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## QUIETE CLAMANTLA.

L. Lat. In old English law. Quitclaim. Bract, fol. 33b.

5e apparatus — Not carried into the 5th edition (1979).

## QUIETE CLAM ARE.

L. Lat To quit- claim or renounce all pretensions of right and title. Bract fols. L 5.

5e apparatus — Not carried into the 5th edition (1979).

## QUIETUS.

In old English law. Quit; acquitted ; discharged. A word used by the clerk of the pipe, and auditors in the excheq- uer, in their acquittances or discharges given to accountants; usually concluding with an abinde recessit quietus, (hath gone quit there- of,) which was called a “quietus est.” Cow- ell.

In modern law, the word denotes an acquit- tance or discharge ; as of an executor or ad- ministrator, (White v. Ditson, 140 Mass. 851, 4 N. E. 606, 54 Am. Rep. 473,) or of a judge or attorney general, (3 Mod. 99.)

QUIETUS REDDITUS." In old English law. Quitrenh Spelman. See Quitbent.

Quilibet potest renunciare juri pro so Introdncto. Every one may renounce or re- linquish a right Introduced for his own bene- fit 2 Inst. 183; Wing. Max. p. 483, max. 123; 4 Bl. Comm. 317.

5e apparatus — Not carried into the 5th edition (1979).

## QUHXE.

In French marine law. Keel; the keel of a vessel. Ord. Mar. llv. 3, tit. 6, art 8.

5e apparatus — Not carried into the 5th edition (1979).

## QUINQUE TORTUS.

In old English law. The Cinque Ports. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## QU1MQUEPART1TE.

Consisting of five parts ; divided Into five parts.

QUINSTEME, or QUINZIME. Fif- teenths ; also the fifteenth day after a festi- val. 13 Edw. I. See Cowell.

QUIRT AX, or KINTAL. A weight of one hundred pounds. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## QUINTERONE.

A term used in the West Indies to designate a person one of whose parents was a white person and the other a quadroon. Also spelled “quintroon." See Daniel v. Guy, 19 Ark. 131.

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5e apparatus — Not carried into the 5th edition (1979).

## QUUTTO EXACTUS.

In old practice. Called or exacted the fifth time. A return made by the sheriff, after a defendant had been proclaimed, required, or exacted in five county courts successively, and failed to ap- pear, upon which he was outlawed by the coroners of the county. 3 BL Comm. 283.

5e apparatus — Not carried into the 5th edition (1979).

## QUIRE OF ROVER.

In English law. A record In the exchequer, showing the ten- ures for guarding and repairing Dover Cas- tle, and determining the services of the Cinque Ports. 3 How. State Tr. 868.

5e apparatus — Not carried into the 5th edition (1979).

## QUIRIT ARLAN OWNERSHIP.

In Ro- man law. Ownership held by a title recog- nized by the municipal law, In an object also recognized by that law, and in the strict character of a Roman citizen. “Roman law originally only recognized one kind of domin- ion, called, emphatically, ‘qulritary domin- ion.’ Gradually, however, certain real rights arose which, though they failed to satisfy all the elements of the definition of qulritary dominion, were practically Its equivalent, and received from the courts a similar protec- tion. These real rights might fall short of qulritary dominion in three respects: (1>

Either in respect of the persons in whom they resided ; (2) or of the subjects to which they related; or (3) of the title by which they were acquired.” In the latter case, the ownership was called “bonltarian,” i. e., "the property of a Roman citizen, In a subject capable of qulritary property, acquired by a title not known to the civil law, but Intro- duced by the pnetor and protected by his imperium or supreme executive power;" e. g ., where res mancipi had been transferred by mere tradition. Poste’s Gaius' Inst 186.

Quisquls erit qul vslt Juris- consul turn haberi continuet studlum, velit a quo- ounque doceri. Jenk. Cent Whoever wish- es to be a jurls-consult, let him continually study, and desire to be taught by every one.

Quisqnis prmsumitur bonus; et semper in dubiii pro reo respondendum. Every one Is presumed good ; and In doubtful cases the resolution should be ever for the ac- cused.

QUIT, v. To leave; remove from; sur- render possession of ; as when a tenant “quits” the premises or receives a “notice to quit"

—Notice to quit. A written notice given by a landlord to nis tenant, stating that the for- mer desires to repossess himself of the demised premises, and that the latter is required to quit and remove from the same at a time designated, either at the expiration of the term, if tne ten- ant is in under a lease, or immediately, if the tenancy is at will or by sufferance.

QUOD 2EDIFICATUR IN AREA

QUIT, ad]. Clear; discharged; free; also spoken of persons absolved or acquitted of a charge.

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QUITCLAIM, v. In conveyancing. To release or relinquish a claim; to execute a deed of quitclaim. See Quitclaim, n.

QUITCLAIM, n. A release or acquit- tance given to one man by another. In re- spect of any action that be has or might have against him. Also acquitting or giving up one's claim or title. Termes de la Ley ; Cow- ell.

— Quitclaim deed. A deed of conveyance op- erating by way of release; that is, intended to pass any title, interest, or claim which the gran- tor may have in the premises, but not profess- ing that such title is valid, nor containing any warranty or covenants for title. See Hoyt v. Ketcham, 64 Conn. 60, 6 Atl. 606: Chew v. Kellar, 171 Mo. 215, 71 S. W. 172; Ely v. Stan- nard, 44 Conn. 528; Martin v. Morris, 62 Wis. 418. 22 N. W. 525; Utley v. Fee, 33 Kan. 683, 7 Pac. 655.

5e apparatus — Not carried into the 5th edition (1979).

## QUITRENT.

Certain established rents of the freeholders and ancient copyholders of manors are denominated "qultrents," because thereby the tenant goes quit and free of all other services. 3 Cruise, Dig. 314.

5e apparatus — Carried into the 5th edition (1979).

## QUITTANCE.

An abbreviation of "ac- quittance a release, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 6:12, KJV]**

And forgive us our debts, as we forgive our debtors.

Why: Quittance is release, acquittance, discharge. This petition is the release-of-debt root — forgiveness of debts as the pattern of all quittance.

## QUO ANIMO.

Lat. With what Intention or motive. Used sometimes as a substan- tive, In lieu of the single word "animus" design or motive. "The quo animo Is the real subject of Inquiry." 1 Kent, Comm. 77.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus reus non facit reum nisi mens sit rea]**

'The quo animo is the real subject of inquiry' — intention or motive — states the mens rea principle: the act alone does not make one guilty unless the mind is guilty.

Why: Genuine: the maxim is the canonical statement of the intent-inquiry the entry defines; standard form, confidently cited.

**[Scripture] — Scripture**

**[1 Samuel 16:7, KJV]**

But the LORD said unto Samuel, Look not on his countenance, or on the height of his stature; because

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I have refused him: for the LORD seeth not as man seeth; for man looketh on the outward appearance, but the LORD looketh on the heart.

Why: 'With what intention or motive' — the inquiry into inward design. This verse states the inward-intention principle behind quo-animo inquiries: the LORD looks on the heart.

## QUO JURE.

Lat In old English prac- tice. A writ which lay for one that had land in which another claimed common, to compel the latter to show by what title he claimed It Cowell ; Fltzh. Nat Brev. 128, F.

Quo ligatur, eo dlssolvitur. 2 Rolle, 2L By the same mode by which a thing Is bound, by that Is it released.

5e apparatus — Not carried into the 5th edition (1979).

## QUO MINUS.

Lat. A writ upon which all proceedings In the court of exchequer were formerly grounded. In It the plaintiff suggests that he is the king's debtor, and that the defendant has done him the injury or damage complained of, quo minus sufflcienS existit, by which he is less able to pay the king’s debt. This was originally requisite In order to give Jurisdiction to the court of ex- chequer; but now this suggestion Is a mere form. 3 Bl. Comm. 46.

Also, a writ which lay for him who had a grant of house-bote and hay-bote in another's woods, against the grantor making such waste as that the grantee could not enjoy his grant. Old Nat. Brev. 148.

.Quo modo quid oonatitnitwr eodem modo dlssolvitur. Jenk. Cent. 74. In the same manner by which nn.vthing Is consti- tuted by that it Is dissolved.

5e apparatus — Not carried into the 5th edition (1979).

## QUO WARRANTO.

In old English prac- tice. A writ, In the nature of a writ of right for the king, against him who claimed or usurped any office, franchise, or liberty, to inquire by what authority he supported his claim, lu order to determine the right. It lay also in case of uon-user, or long neg- lect of a franchise, or misuser or abuse of it ; being a writ commanding the defendant to show by what warrant he exercises such a franchise, having never had any grant of it, or having forfeited it by neglect or abuse. 3 Bl. Comm. 202.

In England, and quite generally through- out the United States, this writ has given place to an “information in the nature of a quo warranto,” which, though In form a crim- inal proceeding, is in effect a civil remedy similar to the old writ, and is the method now usually employed for trying the title to a corporate or other franchise, or to a public or corporate office. See Ames v. Kan- sas, 111 U. 8. 449, 4 Sup. Ct. 437, 28 L. Ed. 482; People v. Londoner, 13 Colo. 303, 22 Pac. 764, 6 L. R. A. 444; State v. Owens, 63 Tex. 270; State v. Gleason, 12 Fla. 190; State v. Keam, 17 R. I. 391, 22 Aa 1018

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:23, KJV]**

And when he was come into the temple, the chief priests and the elders of the people came unto him as he was teaching, and said, By what authority doest thou these things? and who gave thee this authority?

Why: Quo warranto commands the defendant to show by what warrant he exercises a franchise. This is the scriptural quo warranto — 'By what authority doest thou these things?' asked of Christ Himself.

**[Hip-hop] — Hip-hop**

**[N.W.A., 'Fuck tha Police', 1988]**

"And not the other color so police think / They have the authority to kill a minority." The writ lies against one who usurps an office, franchise, or liberty, commanding him to show by what warrant he exercises it. The lyric names the usurped authority under challenge — police power over Black life — and the track answers the writ's question by putting the police themselves on trial. Hip-hop's quo warranto: by what warrant does the badge kill?

Why: Added because the lyric directly names the authority that quo warranto would call to account, and the song performs the writ's function (summoning usurped power to show its warrant). Verbatim-certain; genuine, not for…

## QUOAD HOC.

Lat. As to this; with respect to this; so far as a is in particular is concerned.

A prohibition quoad hoe is a prohibition as to certain things among others. Thus, where a party was complained against in the ecclesiastical court for matters cognizable in the temporal courts, a prohibition quoad these matters issued, 1 e., as to such matters the party was prohibited from prosecuting his suit in the ecclesiastical court Brown.

5e apparatus — Not carried into the 5th edition (1979).

## QUOAD SACRA.

Lat As to sacred things ; for religious purposes.

Qaoesmqne modo velit; quocumque modo poult. In any way he wishes; in any way he can. Clason v. Bailey, 14 Johns. (N. Y.) 484, 492.

Quod a quoque pane nomine ezaotum eat Id eidem restituere nemo cogitur.

That which has been exacted as a penalty no one is obliged to restore. Dig. 50, 17, 46.

Quod alt initio sum valet in tractu temporia non convaleaeet. That which is bad in its commencement improves not by lapse of time. Broom, Max. 178 ; 4 Coke, 2.

Quod ad jua naturale attinet omnea hominea aequalea aunt. All men are equal as far as the natural law is concerned. Dig. 50, 17, 32.

Quod aedifioatur in area legata eedit legato. Whatever is built on ground given by will goes to the legatee. Broom, Max. 424.

Quod alias bonuzu et jutim est, si per vim Tel fraudem petator, malum et in* j os turn efflcitur. 3 Coke, 78. Wbat other* wise is good and Just, if it be sought by force and fraud, becomes bad and unjust.

Quod alias aou fait lioitum, neoessi- tas licitum fecit. What otherwise was uot lawful, necessity makes lawful. Fleta, lib, 6, c. 23, i 14.

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Quod approbo non reprobo. What I ap- prove I do not reject I cannot approve and reject at the same time. 1 cannot take the benefit of an Instrument, and at the same time repudiate it Broom, Max. 712.

Quod attlnet ad jus civile, servi pro uullis babentur, aoa tames et jure na- tural!, quia, quod ad jus aaturale atti- aaet, omues homines tequali sunt. So far

as the civil law is concerned, slaves are not reckoned as persons, but not so by natural law, for, so far as regards natural law, all men are equal. Dig. 30, 17, 32.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD BILLA CASSETUR.

That the bill be quashed. The comuiou-law form of a judgment sustaining a plea in abatement, where the proceeding is by bill, i. e., by a capias instead of by original writ

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## QUOD CLERICI BENEFICIATI DE / GANGELLARIA.

A writ to exempt a clerk of the chalieery from the contribution to- wards the proctors of the clergy in parlia- ment, eta Beg. Orig. 261. IN OFFICIO BALLITI, etc. A writ which lay for a clerk, who, by reason of some land he had, was made, or was about to be made, bailiff, beadle, reeve, or some such officer, to obtain exemption from serving the office. Keg. Orig. 187.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD COMPUTET.

That he account judgment quod computet is a preliminary or interlocutory judgment given in the action of account-render (also in the case of cred- itors' bills against an executor or adminis- trator,) directing that accouiits be taken be- fore a master or auditor.

Quod constat clare non debet verifi- es ri. What is clearly apparent need not be proved. 10 Mod. 150.

Quod constat ourlse opere testium non indiget. That which appears to the court needs not the aid of witnesses. 2 Inst. 062.

Quod contra legem fit pro infecto babe*

tur. That which is done against law is re- garded as not done at all. 4 Coke, 31o.

Quod contra rationem juris receptum est, non est producendum ad consequential. That which has been received against the reason of the law is not to be drawn into a precedent Dig. 1, 3, 14.

5e apparatus — Carried into the 5th edition (1979).

## QUOD GUM.

In pleading. For that whereas. A form of introducing matter of inducement in certain actions, as assumpsit and case.

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Quod datum est eoclesise, datum est Deo. 2 Inst 2. What is given to the church is given to God.

Quod demonstrandi causa additur rei satis, demonstrate!, frustra fit. 10 Coke, 113. What is added to a thing sufficiently palpable, for the purpose of demonstration, is vain.

Quod dubitas, ne feceris. What you doubt of, do not do. In a case of moment especially in cases of life, it is safest to hold that in practice which hath least doubt and dangpr. 1 Hale, P. C. 300.

QUOD Et DEFORCEAT. In English law. The name of a writ given by St Westm. 2, 13 Edw. I. c. 4, to the owners of a particular estute, as for life, in dower, by the curtesy, or in fee-tail, who were barred of the right of possession by a recovery had against them through their default or non- appearance in a possessory action, by which the right was restored to him who had been thus unwarily deforced by his own default 3 BL Comm. 193.

Quod eat ox necessitate nunquam ia- troducitur, nisi quando necessarium. 2

Kolle, 502. That which is of necessity is never introduced, unless when necessary.

Quod est in conveniens ant contra ra- tionem non permissnm est in lege. Co.

Litt 178a. That which is inconvenient or against reason is not permissible in law.

Quod est necessarium est licitum.

What is necessary is lawful. Jenk. Cent p. 76, case 45.

Quod factum eat, cum in obscure sit, ex aifeetione cujusque eapit interpreta* tionem. When there is doubt about an act, it receives interpretation from the (known) feelings of the actor. Dig. 50, 17, 6S, L

Quod fieri debet facile prsesumitnr.

Hulk. 153. That which ought to be done is easily presumed.

Quod fieri non debet, factum valet

That which ought not to be doue, when done, is valid. Broom, Max. 182.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD FUIT CONCESSUM.

Which was granted. A phrase in the reports, signify- ing that an argument or point made was conceded or acquiesced in by the court.

■ Quod In jar* aorlpto “ja»” apptllatar, id In lege Angllsn “rectum” ease dioitur.

What In the civil law is called “jus,” in the law of England is said to be “rectum," (right) Co. Litt. 200 ; Fleta, 1. 6, c. 1, { 1.

Quod In minor! valet valeblt in ma- jor!; et «aod in major! non valet nee valeblt in minor!. Co. Litt 260a. That which is valid in the less shall be valid in the greater ; and that which is not valid in the greater shall neither be valid in the less.

Quod in ano slmillum valet valeblt in altero. That which is effectual in one of two like things shall be effectual In the oth- er. Co. Litt 191a.

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Quod inoonsulto feeimus, consul tins revoeemus. Jenk. Cent 116. What we have done without due consideration, upon better consideration we may revoke.

Quod Initio vitiosum est non potest traetu temporia eonvalescere. That which is void from the beginning cannot be- come valid by lapse Of time. Dig. 50, 17, 29.

Quod ipaii qui contr axe runt obstat, et suceesaoribus eorum obstabit. That which bars those who have made a contract will bar their successors also. Dig. 50, 17, 143.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD JTUSSU.

Lat In the civil law. The name of an action given to one who had contracted with a son or slave, by order of the father or master, to compel such father or master to stand to the agreement Halli- fax, Civil Law, b. 3, c. 2, no. 3 ; Inst. 4, 7, 1.

Quod juasu alter! ux solvitur pro eo est quasi ipsi solutum esset. That which is paid by the order of another is the same as though It were paid to himself. Dig. 50, 17, 180.

Quod meum eat sine facto moo vel de- fects meo amitti vel in alium tranaferri non potest. That which is mine cannot be lost or transferred to another without my alienation or forfeiture. Broom, Max. 465.

Quod meum est sine me auferri non potest. That which is mine cannot be taken away without me, [without my assent] Jenk. Cent. p. 251, case 41.

Quod minus est in obligatlonem vide- tur deduotum. That which is the less is held to be imported into the contract; (e. g., A offers to hire B.’s house at six hundred dollars, at the same time B. offers to let it for five hundred dollars ; the contract is for five hundred dollars.) 1 Story, Cont. 481.

Quod natural!* ratio inter omnes homi- nes eonstituit, vocatur jus gentium.

That which natural reason has established

among all men is called the “law of nations.” 1 Bl. Comm. 43; Dig. 1, 1, 9; Inst. 1, 2, 1.

Quod necessarie lntelligitur non deest.

1 Bulst. 71. That which is necessarily un- derstood is not wanting.

Quod necessltaa cogit, defendlt. Hale,

P. C. 54. That which necessity compels, it justifies.

Quod non apparet non est; et non ap- paret judioialiter ante judicium. 2 Inst. 479. That which appears not is not; and nothing appears judicially before Judgment

Quod non oapit Christus, caplt fisous.

What Christ [the church] does not take the treasury takes. Goods of a fclo de se go to the king. A maxim in old English law. Xearb. P. 19 Hen. VL 1.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD NON FUXT NEGATUM.

Which was not denied. A phrase found in the old reports, signifying that an argument or

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prop- osition was not denied or controverted by the court. Latch, 213.

Quod non babet prineipium non babet Haem. Wing. Max. 79 ; Co. Litt. 345a. That which has not beginning has not end.

Quod non legitur, non creditor. What is not read is not believed. 4 Coke, 304.

Quod non valet' in principal!, in ac- oessorio stp consequent! non valeblt; et quod non valet in magis proplnquo non valeblt in magis remoto. 8 Coke, 78. That which is not good against the princi- pal will not be good as to accessories or consequences ; and that which is not of force in regard to things near it will not be of force in regard to things remote from it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## QUOD NOTA.

Which note ; which mark. A reporter's note in the old books, directing attention to a point or rule. Dyer, 23.

Quod nullius esse potest id ut alicu- jus fleret nulla obligatio valet efficere.

No agreement can avail to make that the property of any one which cannot be ac- quired as property. Dig. 50, 17, 182.

Quod nullius est, est domini regie.

That which is the property of nobody belongs to our lord the king. Fleta, lib. 1, c. 3; Broom, Max. 354.

Quod nullius est, id rations natural! occupant! ooneeditur. That which is the property of no one is, by natural reason, given to the [first] occupant Dig. 41, 1, 3; Inst 2, 1, 12. Adopted in the common law.

2 Bl. Comm. 258.

Quod nullum est, nullum producit ef- fectual. That which is null produces no effect Tray. Leg. Max. 519.

Quod omiM tuglt ab omnibus debet ■npportarl. That which touches or con- cerns ail ought to be supported by all. 3 How. State Tr. 878, 1087.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD PARTES REPLACITENT.

That the parties do replead. The form of the judgment on award of a repleader. 2 Salk. 579.

5e apparatus — Carried into the 5th edition (1979).

## QUOD PARTITIO FIAT.

That parti- tion be made. The name of the judgment in a suit for partition, directing that a partition be effected.

Quod pendet non est pro eo quasi sit.

What is in suspense is considered as not ex- isting during such suspense. Dig. 50, 17, 109, 1.

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Quod per me non possum, nee per alluxa. What I cannot do by myself, I can- not by another. 4 Coke, 246,- 11 Coke, 87 o.

Quod per recordum probatum, non de- bet esse negatum. What is proved by record ought not to be denied.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:7, KJV]**

The daughters of Zelophehad speak right: thou shalt surely give them a possession of an inheritance among their father's brethren; and thou shalt cause the inheritance of their father to pass unto them.

Why: 'That partition be made' — the judgment directing partition. This is the divine ruling dividing an inheritance among heirs — partition by legal decree.

## QUOD PERMITTAT.

That he permit In old English law. A writ which lay for the heir of him that was disseised of his common of pasture, against the heir of the disseisor. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## QUOD PERMITTAT PROSTERNERE.

That he permit to abate. In old practice. A writ in the, nature of a writ of right which lay to abate a nuisance. 3 BI. Comm. 221. And see Conhocton Stone Road v. Buffalo, etc., R. Co., 51 N. Y. 579, 10 Am. Rep. 646; Powell v. Furniture. Co., 34 W. Va. 804, 12

S. E. 1085, 12 L. R. A. 53 ; Miller v. True- hart 4 Leigh (Va.) 577. DARH, etc. A writ which lay for spirit- ual persons, distrained In their spiritual pos- sessions, for payment of a fifteenth with the rest of the parish. Fitzh. Nat. Brev. 175. Obsolete.

Quod populus postromnm juasit, Id jus ratnm esto. What the people have last enacted, let that be the established law. A law of the Twelve Tables, the principle of which is 3till recognized. 1 Bl. Comm. 89.

Quod primum oat Intentions ultimum est lu operations. That which is first in intention is last in operation.' Bac. Max.

Quod prlneipl placult legis babet vigo- rem. That which has pleased the prince has the force of law. The emperor’s pleasure has the force of low. Dig. 1, 4, 1; Inst 1, 2, 6. A celebrated maxim of imperial law.

Quod prlus eat verina est ; et quod prius est tempore potius est jure. Co.

Lltt. 347. What is first is true ; and what is first in time is better in law.

Quod pro minors licitum est et pro majors lioitum est. 8 Coke, 43. That which is lawful as to the minor is lawful as to the major.

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**[Law] — Law**

**[Maxim: Sic utere tuo ut alienum non laedas — use your own property so as not to injure another's]**

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This nuisance-abatement writ is the procedural expression of the maxim that one must use one's own property so as not to injure another's.

Why: The entry defines the writ as lying 'to abate a nuisance'; the sic utere maxim states the substantive principle of neighbor-law that makes nuisance actionable, so it genuinely illuminates why such a writ exists rather…

## QUOD PROSTRAVIT.

That he do abate. The name of a judgment upon an in- dictment for a nuisance, that the defendant abate such nuisance.

Quod pure debetur praesentl die debe- tur. That which is due unconditionally is due now. Tray. Leg. Max. 619.

Quod qnis ez eulpa sua damnum sen- tit non Intelllgitur damnum sen tire.

The damage which one experiences from his own fault is not considered as his damage. Dig. 50, 17, 203.

Quod quls sclens Indebltum debit bae meats, ut postea repeteret, repetero non potest. That which one has given, know- ing it not to be due, with the intention of re- demanding it, he cannot recover back. Dig. 12, 6, 50.

Quod qulsquls norlt In hoe se oxerceat.

Let every one employ himself in what he knows. . 11 Coke, 10.

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**[Law] — Law**

**[Maxim: Sic utere tuo ut alienum non laedas — use your own property so as not to injure another's]**

The judgment 'that he do abate' upon a nuisance indictment enforces the maxim that property must be used so as not to injure another.

Why: Same genuine root as QUOD PERMITTAT PROSTERNERE: the writ seeks abatement and this is the judgment granting it; the sic utere maxim is the substantive principle both serve. Citing the same maxim for both is honest, no…

## QUOD RECUPERET.

That he recover The ordinary form of Judgments for the plaintiff in actions at law. 1 Archb. Pr. K.

B. 225; 1 Burrill, Pr. 246.

Quod remedlo destltultur Ipsa re valet si eulpa abslt. That which is without rem- edy avails of Itself, if there be no fault in the party seeking to enforce it Broom. Max. 212.

Quod semel aut bis ejcistit prssterunt legislatores. Legislators pass over what happens [only] once or twice. Dig. 1, 3, 6; Broom, Max. 46.

Quod semel mourn set ampllus meum esse non potest. Co. Litt. 496. What is once mine cannot be more fully mine.

Quod semel plaeult In eleotlone, am- pllus dlsplleere non potest. Co. Litt. 146. What a party has once determined, in a case where he has an election, cannot afterwards be disavowed.

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**[Law] — Law**

**[Maxim: Ubi jus ibi remedium — where there is a right, there is a remedy]**

The standard judgment formula 'that he recover' is the procedural embodiment of the principle that where the law recognizes a right it furnishes a remedy.

Why: Borderline but genuine: the entry is about the form of judgment for a prevailing plaintiff; ubi jus ibi remedium explains why such a recovery-formula exists at all — right without an enforcing judgment would be empty....

## QUOD SI CONTINGAT.

That if it hap- pen. Words by which a condition might formerly be created in a deed. Litt. j 330.

Quod sub eerta forma conoessum vel reservatum est non trahltur ad valorem vel compensationem. That which is grant- ed or reserved under a certain form is not [permitted to be] drawn into valuation or compensation. Bac. Max. 26, reg. 4. That which is granted or reserved in a certain specified form must be taken as it is granted. and will not be permitted to be made the subject of an; adjustment or compensation on tbe part of the grantee. Ex parte Mil- ler, 2 Hill (N. Y.) 423.

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Quod subintolllgltur non deest. What is understood is not wanting. 2 Ld. Raym. 882.

Qnod taoite intelligitur deesse non vl- dotnr. What is tacitly understood is not considered to be wanting. 4 Coke, 22a.

Qnod vanum et inutile eat, lex non re- quirlt. Co. Litt. 319. The law requires not what is vain and useless.

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**[Law] — Law**

**[Law: conditions in deeds, particularly conditions subsequent, are strictly construed against forfeiture]**

Words creating a condition in a deed invoke the construction rule that conditions — especially conditions subsequent working a forfeiture — are strictly construed.

Why: The entry identifies these words as condition-creating language in conveyances; the strict-construction rule is the operative doctrine courts apply to exactly such language, so it genuinely illuminates the entry's leg...

## QUOD TIDE.

Which see. A direction to tbe reader to look to another part of the book, or to another book, there named, for further information.

Qnod voluit non dixit. What he intend- ed be did not say, or express. An answer sometimes made in overruling an argument that the law-maker or testator meant so and so. 1 Kent, Comm. 408, note; Mann v. Mann’s Ex’rs, 1 Johns. Ch. (N. Y.) 235.

Quodeuaque aliquis oh tutelam cor- poris ini t eeerit, jure id fecisse videtur.

2 Inst 590. Whatever any one does in de- fense of his person, that he is considered to - have done legally.

Quodque dissolvitur eodem modo qno ligatur. 2 Rolle, 39. In the same manner that a thing

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is bound, in the same manner it is unbound.

QUONIAM ATTACHIAMElfTA. (Since the attachments.) One of tbe oldest books in the Scotch law. So called from the two first words of the volume. Jacob ; Whishaw.

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## QUORUM.

When a 'committee, board of directors, meeting of shareholders, legisla- tive or other body of persons cannot act un- less a certain number at least of them are present, that number is called a “quorum." Sweet. In the absence of any law or rule fixing the quorum, it consists of a major- ity of those entitled to act. See Ex parte Willcocks, 7 Cow. (N. Y.) 409, 17 Am. Dec. 525; State v. Wilkesville Tp., 20 Ohio St. 293; Heiskell v. Baltimore, 05 Md. 125, 4 Atl. 116, 57 Am. Rep. 308; Snider v. Rine- hart, 18 Colo. 18, 31 Pac. 710.

— Justices of the quorum. In English law, those justices of the peace whose presence at a session is necessary to make a lawful bench. AH the justices of the peace for a county are named and appointed in one commission, which authorizes them all, jointly and severally, to keep the peace, but provides that some particu- lar named justices or one of them shall always be present when business is to be transacted, the ancient Latin phrase being “quorum tmum

A. B. etie volumun.” These designated persons are the "justices of the quorum.” But the distinction is long since obsolete. See 1 Bl. Comm. 351 ; Snider v. Rinehart, 18 Colo. 18, 31 Pac. 716 ; Gilbert v. Sweetser, 4 Me. 484.

Quorum prsetextu nee angst aeo mi- ll ult seateatiaua, sed tantum conflrmat prsemissa, Plowd. 52. “ Quorum proetextu" neither Increases nor diminishes a sen- tence, but only confirms that which went be- fore.

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 5 — 'a Majority of each [House] shall constitute a Quorum to do Business']**

The Constitution itself fixes the quorum principle for Congress: 'a Majority of each [House] shall constitute a Quorum to do Business.'

Why: The entry states the default rule that quorum is a majority absent contrary law; Article I, Section 5 is that rule's most authoritative American instantiation, quoted briefly and exactly. Directly illuminating, not de...

## QUOT.

In old Scotch law. A twentieth part of the movable estate of a person dy- ing, which was due to the bishop of the dio- cese within which the person resided. Bell.

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## QUOTA.

A proportional part or share, the proportional part of a demand or liabil- ity, falling upon each of those who are col lectlvely responsible for tbe whole.

QUOTATION. 1. The production to a court or judge of the exact language of a statute,

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precedent, or other authority, in support of an argument or proposition ad- vanced.

2. The transcription of part of a literary composition into another book or writing.

3. A statement of the market price of one or more commodities ; or the price specified to a correspondent.

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**[Law] — Law**

**[Maxim: Aequitas est quasi aequalitas — equality is equity]**

A quota — each co-obligor's proportional share of a common liability — is measured by the equitable principle of contribution: equality is equity.

Why: The entry defines quota as the proportional part falling on each of those collectively responsible; the maxim states the principle by which courts apportion a shared burden among co-obligors (contribution). Genuine: t...

**[Scripture] — Scripture**

**[Numbers 26:55, KJV]**

Notwithstanding the land shall be divided by lot: according to the names of the tribes of their fathers they shall inherit.

Why: Quota is a proportional share of a collective liability. Numbers 26:53-56 is Scripture's own apportionment rule: inheritance divided by lot in proportion to number. The quoted clause is within the LORD's speech to Mos...

## QUOTIENT VERDICT.

A money ver diet the amount of which is fixed by the fol- lowing process: Each Juror writes down the sum he wishes to award by the verdict ; these amounts are all added together, and the total is divided by twelve, (the number of the jurors.) and the quotient stands as the verdict of the jury by their agreement. See Hamilton v. Owego Waterworks, 22 App Div. 573, 48 N. Y. Supp. 106 ; Moses v. Rail- road Co., 3 Misc. Rep. 322, 23 N. Y. Supp. 23.

Quotles dubia Interpret* tio libertatls eat, secundum Mbertatem respondendum erit. Whenever the interpretation of liber- ty is doubtful, the answer should be on the side of liberty. Dig. 50, 17, 20.

Quotles idem sermo duas sententiaa exprimit, ea potissimum exeipiatur, qua ret gerondse aptlor est. Whenever the same language expresses two meanings, that should be ndopted which is the better fitted for carrying out the subject-matter. Dig. 50, 17. 67.

Quotles In stipul ationibus aaUgua oratio est, com modi ssimum est Id aeeipi quo res de qua agitur in tuto sit. When- ever the language of stipulations is ambigu- ous, it is most fitting that that [sense] should be taken by which the subject-matter may be protected. Dig. 45. 1, 80.

Quotles la verbis nulla est ambigu- Itas, lbi nulla expositio contra verba flenda est. Co. Litt 147. When In the

words there is no ambiguity, then no expo- sition contrary to the words is to be made.

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**[Law] — Law**

**[Law: quotient/chance verdicts as jury misconduct — see Hamilton v. Owego Waterworks, 22 App. Div. 573, 48 N.Y. Supp. 106, as cited in Black's 2e]**

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A verdict fixed by prior agreement to accept the average of jurors' sums is a chance verdict — jury misconduct and ground for a new trial, not a deliberated judgment.

Why: The entry describes the averaging process and cites cases treating it; the black-letter rule that such verdicts are set aside as misconduct is the legal consequence that makes the definition matter. Case cite is taken…

## QUOTUPLEX.

Of how many kinds ; how many fold. A term of frequent occur- rence in Sheppard’s Touchstone.

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## QUOUSQUE.

Lat. How long; how far; until. In old conveyances It is used as a word of limitation. 10 Coke, 41.

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**[Law] — Law**

**[Law: words of limitation vs. words of purchase in conveyancing (e.g., 'to A and his heirs')]**

As a word of limitation, 'quousque' ('until') belongs to the doctrine distinguishing words of limitation — which measure the estate's duration — from words of purchase, which name the taker.

Why: The entry's whole legal content is that quousque is 'used as a word of limitation'; the limitation/purchase distinction is the doctrine that gives that classification its meaning. Genuine doctrinal illumination.

## QUO VIS MODO.

Lat In whatever manner.

Quum de lnero dnomm qasratvr, melior es* nan possidentis. When the question is as to the gain of two persons, the title of the party in possession is the better one. Dig. 50, 17, 126, 2.

Qaam in testamento anUgaa amt etiam perpernm soriptnm est, benigme interpretari et saoandam id qaod cred- ible et co citatum, credendum est. When In a will an ambiguous or even an erroneous expression occurs, it should be construed liberally and in accordance with what is thought the probable meaning of the tes- tator. Dig. 34, 5, 24; Broom, Max. 437.

Qaam principalis onnss non consistlt ne ea qnidem quae sequuntur locum

bmbent. When the principal does not hold, the incidents thereof ought not to obtain. Broom, Max. 496.

Quum quod ago non maiet nt ago, valeat quantum valero potest. 1 Vent. 216. When what I do is of no force as to the purpose for which I do it, let it be of force to as great a degree as it can.

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# R

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### R.

R

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# B

### B.

In the signatures of royal persons, “R.” is an abbreviation for "rex" (king) or “regina" (queen.) In descriptions of land, according to the divisions of the govern- mental survey, it stands for “range.” Ot- tumwa, etc., R. Co. v. McWilliams, 71 Iowa, 164, 32 N. W. 315.

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### B. O.

An abbreviation for Regula Gen- eral is, a general rule or order of court; or for the plural of the same.

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# R

### R. L.

This abbreviation may stand either for “Revised Laws” or “Roman law.”

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### R. S.

An abbreviation for “Revised Stat- utes.”

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### RACE.

A tribe, people, or nation, be- longing or supposed to belong to the same stock or lineage. “Race, color, or. previous condition of servitude." Const U. S., Am. XV.

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**[Law] — Law**

**[Law: U.S. Const. amend. XV — 'The right of citizens of the United States to vote shall not be denied or abridged ... on account of race, color, or previous condition of servitude']**

In American law 'race' is a constitutionally protected classification: the Fifteenth Amendment bars denial of the vote 'on account of race, color, or previous condition of servitude.'

Why: The entry itself invokes the Fifteenth Amendment's 'race, color, or previous condition of servitude' language; the Amendment is the operative legal significance of the term in U.S. law, quoted briefly and exactly. Str...

**[Scripture] — Scripture**

**[Galatians 3:28, KJV]**

There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female: for ye

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are all one in Christ Jesus.

Why: The entry defines race as lineage/stock and cites the Fifteenth Amendment ('race, color, or previous condition of servitude'). Paul's verse is Scripture's own erasure of race, nation, and bondage as grounds of legal d...

## RACE-WAY.

An artificial canal dug in the earth; a channel cut in the ground. Wilder v. De Cou, 26 Minn. 17, 1 N. W. 48. The channel for the current that drives a water-wheel. Webster.

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## RACHAT.

In French law. The right of repurchase which, in English and American law, the vendor may reserve to himself. It is also called “rdmdrd.” Brown.

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**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: Rachat is the vendor's reserved right of repurchase (remere). Leviticus 25:25 is the kinsman-redeemer law: the redemption of sold land by the next of kin — the scriptural root of the repurchase right.

## RACHATER.

L. Fr. To redeem; to repurchase, (or buy back.) Kelham.

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**[Scripture] — Scripture**

**[Leviticus 25:48, KJV]**

After that he is sold he may be redeemed again; one of his brethren may redeem him

Why: Rachater = to redeem, to buy back. The verse states the redemption right outright: a man sold may be redeemed again by his brethren — buying back what was sold, which is exactly what the verb means.

## RACHETUM.

In Scotch law. Ransom; corresponding to Saxon “i weregllld ,” a pecun- iary composition for an offense. Skene ; Jacob.

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**[Scripture] — Scripture**

**[Exodus 21:30, KJV]**

If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him.

Why: Rachetum is ransom as pecuniary composition for an offense (Scots weregild). Exodus 21:30 is precisely that: a capital liability compounded by a sum of money — the ransom of his life.

## RACHIMBURGII.

In the legal polity of the Salians and RIpuarians and other Germanic peoples, this name was given to the judges or assessors who sat with the count in his mallum, (court,) and were

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gen- erally associated with him in other matters. Spelman.

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## RACK.

An engine of torture anciently used in the inquisitorial method of examin- ing persons charged with crime, the office of which was to break the limbs or dislocate the joints.

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**[Law] — Law**

**[Law: U.S. Const. amend. VIII — 'nor cruel and unusual punishments inflicted']**

The rack is the historical paradigm of the 'cruel and unusual punishments' forbidden by the Eighth Amendment.

Why: The entry is purely descriptive of the torture engine; the Eighth Amendment's prohibition is historically aimed at precisely such engines, giving the definition its legal significance. Quoted briefly and exactly.

## RACK-RENT.

A rent of the full value of the tenement, or near It. 2 Bl. Comm. 43.

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## RACK-VINTAGE.

Wines drawn from the lees. Cowell.

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## RADICALS.

A political party. The term arose in England, in 1818, when the popular leaders, Hunt Cartwright, and oth- ers, sought to obtain a radical reform in the

representative system of parliament. Bol- ingbroke (Disc. Parties, Let. 18) employs the term in its present accepted sense: “Such a remedy might have wrought a radical cure of the evil that threatens our constitution,” etc. Wharton.

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## RADOUB.

In French law. A term in- cluding the repairs made to a ship, and a fresh supply of furniture and victuals, muni- tions, and -other provisions required for the voyage. 3 Pard. Droit Cornmer. § 602.

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## RAFFLE.

A kind of lottery in which several persons pay, in shares, the value of something put up as a stake, and then deter- mine by chance (as by casting dice) which one of them shall become the sole possessor of it. Webster; Prendergast v. State, 41 Tex. Cr. R. 358, 57 S. W. 850 ; State v. Ken- non, 21 Mo. 264; People v. American Art Union, 7 N. Y. 241.

A raffle may be described as a species of “adventure or hazard,” but Is held not to be a lottery. State v. Pinchback, 2 Mill, Const. (S. C.) 130.

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**[Law] — Law**

**[Law: the prize–chance–consideration test distinguishing lotteries]**

Courts sort raffles from lotteries by the three-element test — prize, chance, and consideration — which is exactly the classification exercise the entry's cases perform.

Why: The entry turns on whether a raffle is a lottery (citing State v. Pinchback holding it is not); the three-element test is the operative legal standard courts apply to that question. Genuine: it explains the cited case...

**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: A raffle determines sole possession by chance (dice/lots). Proverbs 16:33 is Scripture's doctrine of the lot: the cast is man's, the disposing the LORD's.

## RAGEMAN.

A statute, so called, of jus- tices assigned by Edward I. and his coun- cil, to go a circuit through all England, and to hear and determine all complaints of in- juries done within five years next before Michaelmas, in the fourth year of his reign. Spelman.

Also a rule, form, regimen, or precedent.

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## RAGMAN’S ROLL, or RAGEMUND’S / ROLL.

A roll, called from one Ragimund or Raglmont, a legate in Scotland, who, sum- moning all the beneflced clergymen in that kingdom, caused them on oath to give in tin- true value of their benefices, according to which they were afterwards taxed by the court of Rome. Wharton.

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## RAILROAD.

A road or way on which iron or steel rails are laid for wheels to run on, for the conveyance of heavy loads In cars or carriages propelled by steam or other motive power. The word “railway” Is of ex- actly equivalent import.

Whether or not this term includes roads operated by horse-power, electricity, cable- lines, etc., will generally depend upon the context of the statute in which it is found. The decisions on this point are at variance.

—Railroad eommiisiop. A body of commis- sioners, appointed in several of the states, to regulate railway traffic within the state, with power, generally, to regulate and fix rates, see to the enforcement of police ordinances, and sometimes assess the property of railroads for taxation. See Southern Pac. Co. v. Board of Railroad Com’rs (C. C.) 78 Fed. 252.

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**[Law] — Law**

**[Case: Munn v. Illinois, 94 U.S. 113 (1877)]**

Railroads as common carriers are 'affected with a public interest' and hence subject to rate regulation

— the doctrinal footing for the railroad commissions the entry describes.

Why: The entry describes commissions 'appointed ... to regulate railway traffic ... with power ... to regulate'; Munn supplies the constitutional doctrine (businesses affected with a public interest may be rate-regulated)...

## RAILWAY.

In law, this term is of ex uctly equivalent import to “railroad.” See

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## RANSOM.

State t. . Brin, 30 Minn. 522,. 1C N. W. 406; Mlllvale Borough v. Evergreen Ry. Co., 131 Pa. 1, 18 Atl. 993, 7 L. R. A. 369; Massa chusetts L. & T. Co. v. Hamilton, 88 Fed 592, 32 C. C. A. 46.

—Railway commiisioners. A body of three ■commissioners appointed under the English reg- ulation of railways act, 1873, principally to en- force the provisions of the railway and canal traffic act, 1854, by compelling railway and canal companies to give reasonable facilities for traffic, to abstain from giving unreasonable pref- erence to any company or person, and to for- ward through traffic at through rates. They also have the supervision of working agreements between companies. Sweet.

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**[Scripture] — Scripture**

**[Mark 10:45, KJV]**

For even the Son of man came not to be ministered unto, but to minister, and to give his life a ransom for many.

Why: Ransom is the price paid to redeem from captivity. Christ states his own life as the ransom — the concept's supreme instance, spoken by himself.

## RAISE.

To create. A use may be rais- ed ; i. e., a use may be created. Also to in- fer ; to create or bring to light by construc- tion or interpretation.

—Raise a presumption. To give occasion or ground for a’ presumption; to be of such a char- acter, or to be attended with such circumstan- ces, as to justify an inference or presumption of law. Thus, a person’s silence, in some instan- ces, will “raise a presumption” of his consent to what is done.— Raise an lssne. To bring pleadings to an issue; to have the effect of pro- ducing an issue between the parties pleading in an action. — Raise revenue. To levy a tax, as a means of coilectihg revenue; to bring togeth- er, collect, or levy revenue. The phrase does not imply an increase of revenue. Perry Coun- ty v. Selma, etc., R. Co., 58 Ala. 557.— Rais- ins > promise. By this phrase is meant the act of the law in extracting from the facts and circumstances of a particular transaction a promise which was implicit therein, and postu- lating it as a ground of legal liability.— Rais- ins a use. Creating, establishing, or calling into existence a use. Thus, if a man conveyed land to another in fee, without any considera- tion, equity would presume that he meant it to be to the use of himself, and

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would therefore raise an implied use for his benefit. Brown.— Raisins an action, in Scotland, is the institu- tion of an action or suit.— Raisins money. To raise money is to realize money by subscrip- tion, loan, or otherwise. NeW York & It. Ce- ment Co. v. Davis, 173 N. Y. 235, 66 N. E. 9; New London Literary Inst. v. Prehcott, 40 N.

H. 333.— Raisins portions. When a landed ■estate is settled on an eldest son, it is gener- ally burdened with the payment of specific sums of money in favor of his brothers and sisters. A direction to this effect is called a direction for “raising portions for younger children;” and, for this purpose, it is usual to demise or lease the estate to trustees for a term of years, upon trust to raise the required portions by a sale or mortgage of the same. Mozley & Whit- ley.

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## RAH.

Sax. In Saxon and old English law. Open theft, or robbery.

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: Rah is Saxon open theft/robbery. The eighth commandment is the root prohibition of theft, spoken by God in the Decalogue.

## RAHCHO.

Sp. A small collection of men or their dwellings : a hamlet. As used, however, in Mexico and in the Spanish law formerly prevailing in California, the term signifies a ranch or large tract of land suit- able for grazing purposes where horses or cattle are raised, and is distinguished from hacicmla, a cultivated farm or plantation

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## RAHGE.

In the government survey of the United States, this term is used to denote one of the divisions of a state, and des- ignates a row or tier of townships as they appear on the map.

5e apparatus — Not carried into the 5th edition (1979).

## RAHGER.

In forest law. A sworn of fleer of the forest, whose office chiefly con- sists in three points: To walk daily through his charge to see, hear, and inquire as well of trespasses as trespassers in his bailiwick : to drive the beasts of the forest, both of venery and chace, out of the deafforested in- to the forested lands; and to present all trespassers of the forest at the next courts holden for the forest. Cowell.

RAHK, n. The order or place in which certain officers are placed in the army and navy, in relation to others. Wood v. U. 8., 16 Ct. Cl. 158.

RAHK, adf. In English law. Exces- sive ; too large in amount; aa a rank modus. 2 Bl. Comm. 30.

RAHKXHG OF CREDITORS is the

Scotch term for the arrangement of the prop- erty of a debtor according to the claims of the creditors, in consequence of the nature of their respective securities. Bell. The corresponding process in England is the mar- shalling of securities in a suit or action for redemption or foreclosure. Paterson.

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## RAHSOM.

In international law. The

redemption of captured property from the hands of an enemy, particularly of property captured at sea. 1 Kent, Comm. 104.

A sum paid or agreed to be paid for the redemption of captured property. 1 Kent. Comm. 105.

A “ransom," strictly speaking, is not a recap- ture of the captured property. It is 'rather a purchase of the right of the captors at the time, be it what it may ; or, more properly, it is a relinquishment of all the interest and benefit which the captors might acquire or consummate In the property, by a regular adjudication of a prize tribunal, whether it be an interest in rem. a lien, or a mere title to expenses. In this re- spect, there seems to be no difference between the case of a ransom of an enemy or a neutral. Maiaonnaire v. Keating, 2 Gall. 325, Fed. Oaa. No. 8.978.

In old English law. A sum of money paid for the pardoning of some great offense. The distinction between ransom and amer- ciament is said to lie that ransom was the re- demption of a coriioral punishment, while amerciament was a fine or penalty directly Imposed, and not in lieu of another punish- ment. Cowell; 4 Bl. Comm. 380; IJ. S. v. Griffin, 6 D. C. 57.

Ransom was also a sum of money paid for the redemption of a person from captivity or imprisonment. Thus one of the feudal “aids” was to ransom the lord's person if taken prisoner. 2 Bl. Comm. 63.

—Ransom bill. A contract by which a cap- tured vessel, In consideration of her release and of safe-conduct for a stipulated course and time, agrees to pay a certain sum as ransom.

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**[Scripture] — Scripture**

**[Mark 10:45, KJV]**

For even the Son of man came not to be ministered unto, but to minister, and to give his life a ransom for many.

Why: Rahsom is the redemption of captured property from an enemy by payment. Same ransom concept as RANSOM: a price paid to redeem what was taken.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Henry IV, Part 1, c.1597]**

(paraphrase) Shakespeare's Henry IV, Part 1 turns on King Henry IV's refusal to ransom Edmund Mortimer, held captive by Owen Glendower — the classic literary instance of ransom as a sum paid to redeem a captive from the hands of an enemy. (Printed headword 'RAHSOM' is the OCR of RANSOM.) (paraphrase)

Why: Genuine literary illumination of ransom's core: redemption of a captive from an enemy for a sum paid. Honest caveat: the entry emphasizes captured property (esp. at sea); the play's instance is a captured person. The...

## RAPE.

In criminal law. The unlaw- ful carnal knowledge of a woman by a man forcibly and against her will. Code Ga. f 4349; Gore v. State, 119 Ga. 418, 46 S. E. 671, 100 Am. St. Rep. 182; Maxey v. State, 66 Ark. 523, 52 S. W. 2; Croghan v. State, 22 Wis. 444; State v. Montgomery, 63 Mo. 298; People v. Crego, 70 Mich. 319, 38 N,

W. 281 ; Felton v. State, 139 Ind. 531, 39 N.

B. 231.

In English law. An Intermediate divi- sion between a shire and a hundred; or a division of a county, containing several hun- dreds. 1 Bl. Comm. 116; Cowell. Apparent- ly peculiar to the county of Sussex.

—Rape of the forest. In old English law. Trespass committed in a forest by violence. Cowell.— Rape-reeve. In English law. The chief officer of a rape, ( g . v.) 1 Bl. Comm. 116.

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**[Law] — Law**

**[Law: common-law rule that penetration, however slight, completes the offense of rape]**

At common law the 'carnal knowledge' element was complete upon penetration, however slight — emission was not required.

Why: The entry defines rape as 'unlawful carnal knowledge ... forcibly and against her will'; the penetration rule gives the operative legal meaning of 'carnal knowledge,' the definition's load-bearing phrase. Genuine doct...

**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die

Why: The verse is the Mosaic law of rape itself: forcible carnal knowledge against her will, capital punishment for the man, and the victim exonerated (v.26: 'there is in the damsel no sin worthy of death').

## RAPINE.

In criminal law. Plunder ; pillage; robbery. In the civil law, raplna is defined as the forcible and violent taking of another man's movable property with the criminal intent to appropriate it to the rob- ber’s own use. A praetorian action lay for this offense, in which quadruple damages were recoverable. Galus, lib. 3, t 209 ; Inst 4, 2; Mackeld. Rom. Law, { 481; Helnecc. Elem. | 1071.

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**[Scripture] — Scripture**

**[Isaiah 33:1, KJV]**

Woe to thee that spoilest, and thou wast not spoiled; and dealest treacherously, and they dealt not treacherously with thee! when thou shalt cease to spoil, thou shalt be spoiled; and when thou shalt make an end to deal treacherously, they shall deal treacherously with thee.

Why: Rapine is violent plunder/pillage. Isaiah's woe against the spoiler pronounces the lex-talionis reversal on plunder itself: the spoiler shall be spoiled.

## RAPPORT  A SUCCESSION.

In French law and in Louisiana. A proceeding similar to hotchpot; the restoration to the succes- sion of such property as the heir may have received by way of advancement from the decedent, in order that an even division may be made among all the co-heirs. Civ. Code La. art. 1305.

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**[Law] — Law**

**[Law: doctrine of advancement / hotchpot in succession]**

The common-law analogue is the doctrine of advancement: lifetime gifts to an heir are presumed made in anticipation of their share and must be brought into hotchpot for equal division.

Why: The entry describes the civil-law/Louisiana proceeding for restoring advancements to the succession; the common-law advancement doctrine is the same principle in the parallel system, giving genuine comparative illumin…

## RAPTOR.

In old English law. A rav- isher. Fleta, lib. 2, c. 52, | 12.

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## RAPTU  HJEREDIS.

In old English law. A writ for taking away an heir hold- ing in socage, of which there were two sorts: One when the heir was married; the other when he was not. Reg. Orig. 163.

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## RAP U IT.

Lat In old English law.

Ravished. A technical word in old indict- ments. 2 Blast, 30.

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## RASURE.

The act of scraping, scratch- ing, or shaving the surface of a written in- strument, for the purpose of removing cer- tain letters or words from it It Is to be distinguished from “obliteration,” as the lat- ter word properly denotes the crossing out of a word or letter by drawing a line through it with ink. But the two expressions are often used Interchangeably. See Penny v. Corwithe, 18 Johns. (N. Y.) 499.

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**[Law] — Law**

**[Law: UCC § 3-407 — alteration of negotiable instruments]**

An erasure that materially alters a written instrument invokes the alteration doctrine: a material alteration made without the obligor's assent voids or discharges the instrument.

Why: The entry defines rasure as scraping away letters/words from a written instrument and distinguishes it from obliteration; rasure is a species of alteration, and the alteration doctrine states its legal consequence. UC...

## RATABLE ESTATE.

Within the mean- ing of a tax law, this term means “taxable estate ;” the real and personal property which the legislature designates as “tax- able." Marshfield v. Middlesex, 55 Vt. 546.

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**[Law] — Law**

**[Case: McCulloch v. Maryland, 17 U.S. 316 (1819)]**

What counts as 'ratable' is the legislature's exercise of the taxing power — 'the power to tax involves the power to destroy.'

Why: The entry defines ratable estate as the property 'the legislature designates as taxable'; McCulloch states the nature and magnitude of that designating power. The Marshall dictum is quoted exactly and is the canonical...

## RATAM REM HABERE.

Lat. In the civil law. To hold a thing ratified; to rati- fy or confirm it Dig. 46, 8, 12, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ratihabitio mandato aequiparatur — ratification is equivalent to prior command]**

This civil-law 'holding a thing ratified' is the root of the agency rule that subsequent ratification is equivalent to prior authority, relating back to the act.

Why: The entry defines ratam rem habere as 'to ratify or confirm it' (Dig. 46, 8, 12, 1); the ratihabitio maxim states the operative legal effect of ratification in the descended agency doctrine. Direct lineage, genuinely...

## RATE.

Proportional or relative value, measure, or degree ; the proportion or stand- ard by which quantity or value is adjusted. Thus, the rate of interest is the proportion or ratio between the principal and interest. So the buildings in a town are rated for in- surance purposes; i. e., classified and indi vidually estimated with reference to their insurable qualities. In this sense also we speak of articles as being in “first-rate” or “second-rate" condition.

Absolute measure, value, or degree. Thus, we speak of the rate at which public lands are sold, of the, rates of fare upon railroads, etc. See Georgia R. & B. Co. v. Maddox, 116 Ga. 64, 42 S. E. 315 ; Chase v. New York Cent. It. Co., 26 N. Y. 526 ; People v. Dolan, 36 N. Y. 67.

The term is also used as the synonym of “tax ;" that is, a sum assessed by govern- mental authority upon persons or property, by proportional valuation, for public pur- poses. It is chiefly employed in this sense in England, but is there usually confined to taxes of a local nature, or those raised by the parish; such as the poor-rate, borough- rate, etc.

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It sometimes occurs in a connection which gives it a meaning synonymous with “as sessment;” that is, the apportionment of a tax among the whole number of persons who are responsible for it, by estimating the val- ue of the taxable property of each, and mak- ing a proportional distribution of the whole amount. Thus we speak of “rating” persons and property.

In marine Insurance, the term refers to the classification or scaling of vessels based on their relative state and condition In re- gard to Insurable qualities; thus, a vessel in the beat possible condition and offering the best risk from the underwriter’s stand- point, is “rated” as “A 1.” See Insurance Companies v. Wright, 1 Wall. 472, 17 L. Ed. 505.

—Rate of exohange. In commercial law. The actual price at which a bill, drawn in one country Upon another country, can be bought or obtained in the former country at any given time. Story, Bills, § 31.— Rate-tithe. In English law. When any sheep, or other cattle, are kept in a parish for less time than a year, the owner must pay tithe for them pro rata, ac- cording to the custom of the place. Fitzh. Nat. Brev. 51.

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## RASUS.

In old English law. A rase ; a RATIFICATION. The confirmation of a measure of onions, containing twenty Hones, previous act done either by the party him- and each flonis twenty-five heads. Fleta, lib. self or by another; confirmation of a void- 2, c. 12, | 12. able act See Story, Ag. {§ 250, 251 ; 2 Kent,

Conun. 237 ; Norton v. Shelby County, 118

U. S. 425, 6 Sup. Ct. 1121, 30 L. Ed. 178; Gal- lup v. Fox, 64 Conn. 491, 30 Atl. 756; Held v. Field, 83 Va. 26, 1 S. E. 395; Ballard v. Nye. 138 Cal. 588, 72 Pne. 156; Ansonla v. Cooper, 64 Conn. 536, 30 Atl. 760; Smyth v. Lynch, 7 Colo. App. 383, 43 Pac. 670.

. This Is where a person adopts a contract or other transaction which is not binding on him, because It was entered Into by an un- authorized agent or the like. Leake, Cont 268.

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## RATIHABITIO.

Lat. Confirmation, agreement, consent, approbation of a con- tract. Saltmarsh v. Cundia, 51 N. H. 76.

Ratlhabitio mudato nquiparatnr.

Ratification Is equivalent to express com- mand. Dig. 46, 3, 12, 4; Broom, Max. 867; Palmer v. Yates, 3 Sandf. (N. Y.) 151.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ratihabitio mandato aequiparatur — ratification is equivalent to express command]**

The entry's own maxim — ratification is equivalent to express command — is the agency rule that a principal's later assent adopts the agent's unauthorized act as his own.

Why: The entry states the maxim (Dig. 46, 3, 12, 4; Broom, Max. 867); the footnote records its operative meaning

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in the descended agency doctrine, where ratification relates back to the act. The maxim's canonical applicati…

## RATIO.

Rate; proportion; degree. Reason, or understanding. Also a cause, or giving Judgment therein.

—Ratio decidendi. The ground of decision. The point in a case which determines the judg- ment.—Ratio legis. The reason or occasion of a law ; the occasion of making a law. Bl. Law Tracts, 3.

Ratio est form alia causa consnetudi- nis. Reason is the formal cause of custom.

Ratio est legis anima; mntata legis rations mntatnr et lea. 7 Coke, 7. Rea- son is the soul of law ; the reason of luw beiug changed, tbe law Is also changed.

Ratio est radins divini lam inis. Co.

Lltt- 232. Reason Is a ray of the divine light

Ratio et anetoritas, dno clarissima mnndi lamina. 4 Inst. 320. Reason and authority, the two brightest lights of the world.

Ratio legis oat . anima legis. Jenk. Cent. 45. The reason of law is the soul of law.

Ratio potest allegarl dellclente lege; sed ratio vera ot legalis, et non appa- rens. Co. Lltt. 191. Reason may be alleg- ed when law is defective; but it must be true and legal reason, and not merely ap- parent.

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**[Law] — Law**

**[Law: ratio decidendi vs. obiter dicta in stare decisis]**

In precedent only the ratio decidendi — the ground of decision — binds; what is said beyond it is obiter dictum.

Why: The entry defines ratio decidendi and ratio legis; the binding/obiter distinction is the stare decisis doctrine that gives ratio decidendi its force. Without it the definition is inert vocabulary; with it, the entry e…

## RATIONABILE E8TOVERIUM.

A

Latin phrase equivalent to “alimony.”

RATIONABILI PARTE BOlfORTTM.

A writ that lay for the wife against the ex- ecutors of her husband, to have the third part of bis goods after his just debts and funernl expenses had been paid. Fltzh. Nat. Brev. 122.

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**[Law] — Law**

**[Law: the marital support duty as the basis of alimony]**

Alimony rests on the common-law duty of marital support — the obligation to maintain a spouse — which is what this 'reasonable estover' secured to the wife.

Why: The entry equates the phrase with 'alimony' in one line; the support duty explains what alimony is for in law, giving the equivalence its legal content rather than leaving it a bare translation.

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## RATIONAL IB 118 MVI8IS.

An abol- ished writ which lay where two lords, In divers towns, had seigniories adjoining, for him who found his waste by little and little to have been encroached upon, against the other, who had encroached, thereby to recti- fy their bounds. Cowell.

RATIONE IMPOTENT!®. Lat. On account of inability. A ground of qualified property In some animals term natures ; as in the young ones, while they are unable to fly or run. 2 Bl. Comm. 3, 4.

RATIONE MATERIAL Lat By reason

of the matter Involved; In consequence of, or from the nature of, the subject-matter.

RATIONE PERSON®. Lat By rea- son of the person concerned; from the char acter of the person.

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## RATIONE PRIVILEGII.

Lat. This term describes a species of property In wild animals, which consists In the right which, by a peculiar franchise anciently granted by the English crown, by virtue of Its preroga- tive, one man may have of killing and tak- ing such animals on the land of another. 106 E. C. L. 870.

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**[Law] — Law**

**[Case: Pierson v. Post, 3 Cai. 175 (N.Y. 1805)]**

The franchise described is an exception to the general rule that wild animals (ferae naturae) belong to no one until reduced to possession by capture.

Why: The entry describes a special franchise to take game on another's land; Pierson states the background occupancy rule that makes the franchise an exception worth naming. Genuine doctrinal context for the property-in-wi…

## RATIONE SOLI.

Lat. On account of the soli ; with reference to the soil. Said to be the ground of ownership in bees. 2 Bl. Comm. 393.

RATIONE TENOR®. L. Lat. By rea- son of tenure; as a consequence of tenure. 3 Bl. Comm. 230.

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**[Law] — Law**

**[Law: 2 Bl. Comm. 393 — qualified property in animals ratione soli]**

One of Blackstone's three heads of qualified property in wild creatures — with ratione impotentiae and ratione privilegii — each an exception to the occupancy rule.

Why: The entry cites 2 Bl. Comm. 393 and defines the soil-based head; situating it among Blackstone's three heads (the entry's neighbors in this chunk) shows the complete framework it belongs to. Drawn from Black's own cit…

## RATIONES.

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In old law. Tbe pleadings in a suit Rat tones exercere, or ad rat tone* stare, to plead.

RATTENING is where the members of a trade union cause the tools, clothes, or oth- er property of a workman to be taken away or hidden, In order to compel him to Join the union or cease working. It Is, In England, an offeuse punishable by fine or Imprison- ment. 38 Sc 39 Viet. c. 86, § 7. Sweet.

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## RAVISHED.

In criminal practice. A material word In indictments for rape. XVhart. Crlm. Law, § 401.

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## RAVISHMENT.

In criminal law. An unlawful taking of a woman, or of an heir In ward. Rape.

—Ravishment de gard. L. Fr. An abolish- ed writ which lay for a guardian by knight’s service or in socags, against a person who took from him the body of his ward. Fitzh. Nat. Brev. 140; 12 Car. II. c. 3. — Ravishment of ward. In English law. The marriage of an infant ward without the consent of the guardi- an.

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## RAZE.

To erase. 8 How. State Tr. 156.

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## RAZON.

In Spanish law. Cause, {causa.) Las Partldas, pt. 4, tit. 4, 1. 2.

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**[Law] — Law**

**[Law: civil-law causa as the counterpart of common-law consideration]**

In Spanish law causa is the civil-law counterpart of common-law consideration — the juridical reason that makes a promise enforceable.

Why: The entry gives 'cause (causa)' with a Las Partidas cite; the causa/consideration parallel states the term's legal function in the civil-law contract system. Genuine comparative illumination of a one-line definition.

## RE.

Lat. In the matter of; In the case of. A term of frequent use in designating Judicial proceedings. In which there Is only one party. Thus, “Re Vivian" signifies “In the matter of Vivian,” or In “Vivian’s Case.”

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**[Law] — Law**

**[Law: in rem jurisdiction in probate, bankruptcy, and admiralty proceedings]**

'In re' captions typically mark in rem proceedings — probate, bankruptcy, admiralty — where jurisdiction runs against the estate or thing rather than against a defendant.

Why: The entry defines 'Re' as 'in the matter of' for one-party proceedings; the in rem character explains why such

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proceedings are so captioned — there is no defendant, only a thing or estate before the court. Genuine, no...

## RE.

FA. IiO. The abbreviation of “re- cordari facias loquelam," ( q . v.)

Re, verbis, scripto, consensu, tradi- tions, jnnetura vestes sumere pacta solent. Compacts usually take their cloth* lng from the thing Itself, from words, from writing, from consent, from delivery. Plowd. 161.

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## REAPERS.

In the middle temple, those persons were so called who were appointed to deliver lectures or “readings” at certain periods during term. The clerks in holy or- ders who read prayers and assist In the per- formance of divine service In the chapels of the several Inns of court are also so termed. Brown.

REAPING-IN . In English ecclesiastical law. The title of a person admitted to a rectory or other benefice will be divested un- less within two months after actual posses- sion he publicly read In the church of the benefice, upon some Lord's day, and at the appointed times, the morning and evening service, according to the book of common prayer; and afterwards, publicly before the congregation, declare his assent to such book ; and also publicly read the thirty-nine articles In the same church, In the time of common prayer, with declaration of his as- sent thereto; and moreover, within three months after his admission, read upon some Lord’s day In the same church, In the presence of the congregation, In the time of divine service, a declaration by him subscrib- ed before the ordinary, of conformity to the Liturgy, together with the certificate of the ordinary of Its having been so subscribed. 2 Steph. Comm. (7th Ed.) 687; Wharton.

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## REAFFORESTEP.

Where a deafforest- ed forest is again made a forest. 20 Car. II. c. 3.

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## REAP.

la common law. Relating to land, as distinguished from personal proper- ty. This term is applied to lands, tenements, and hereditaments.

In the civil law. Relating to a thing, (whether movable or immovable,) as distin- guished from a person.

—Real bnrden. In Scotch law. Where a right to lands is expressly granted under the burden of a specific sum. which is declared a burden on the lands themselves, or where the right is declared null if the sum be not paid, and where the amount of the sum, and the name of the creditor in it, can be discovered from the

Bl.Law Dict.(2d Ed.)— 63

records, the burden is said to be real. Bell — Real ebymin. L. Fr. In old English law. The royal

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way; the king's highway, (regia via.) —Real injury. In the civil law. An injury arising from an unlawful act, as distinguished - from a verbal injury, which was done by words. Hallifax, Civil Law, b. 2, c. 15, nn. 3, •4.— Real things, (or things real.) In common law. Such things as are permanent, fixed, and im- movable, which cannot be carried out of their place; as lands and tenements. 2 Bl. Comm. 15. Things substantial and immovable, and the rights and profits annexed to or issuing out of them. 1 Steph. Comm. 156.

As to real “Action,” “Assets,” “Chattels,” “Composition,” “Contract,” “Covenant,” “Es- tate,” “Evidence,” “Issue,” “Obligation,” “Party,” “Poinding,” “Privilege,” “Proper- ty.” “Representative,” “Right,” “Security,” “Servitude,” “Statute,” “Warrandice,” and “Wrong,” see those titles.

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**[Law] — Law**

**[Maxim: Quicquid plantatur solo, solo cedit — whatever is affixed to the soil belongs to the soil]**

The real/personal line is policed by the annexation rule: whatever is planted in or affixed to the soil belongs to the soil — quicquid plantatur solo, solo cedit.

Why: Headword is the OCR of REAL ('relating to land, as distinguished from personal property'); the maxim states the operative test — annexation — by which chattels cross the line into realty (the fixture doctrine). Direct...

## REAL LAW.

At common law. The

body of laws relating to real property. This use of the term is popular rather than tech- nical.

In the civil law. A law which relates to specific property, whether movable or Im- movable.

Laws purely real directly and indirectly regulate property, and the rights of proper- ty, without Intermeddling with or changing the state of the person. Wharton.

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## REALITF.

In foreign law. That qual- ity of laws which concerns property or things, (qu<B ad rem spectant.) Story, Confl. Laws, | 16.

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## REALIZE.

To convert any kind of prop- erty into money ; but especially to receive the returns from an investment. See Bitti- ner v. Gomprecht, 28 Misc. Rep. 218, 58 N.

Y. Supp. 1011.

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## REALM.

A kingdom ; a country. 1 Taunt. 270 ; 4 Camp. 289.

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**[Scripture] — Scripture**

**[Daniel 4:17, KJV]**

to the intent that the living may know that the most High ruleth in the kingdom of men, and giveth it to whomsoever he will, and setteth up over it the basest of men.

Why: Realm is a kingdom. The verse states the most High's rule over the kingdoms of men — every realm held under a higher sovereignty.

## REALTY.

A brief term for real proper- ty ; also for anything which partakes of the nature of real property.

— Quasi realty. Things which are fixed in contemplation of law to realty, but movable in themselves, as heir-looms, (or limbs of the in- heritance,) title-deeds, court rolls, etc. Wharton.

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**[Scripture] — Scripture**

**[Psalm 24:1, KJV]**

The earth is the LORD's, and the fulness thereof; the world, and they that dwell therein.

Why: Realty is real property. The psalm states the root title from which all tenure derives: the earth itself is the LORD's, so every holding is derivative.

## REAPPRAISER.

A person who, in cer- tain cases, is appointed to make a revalua tion or second appraisement of Imported goods at the custom-house.

5e apparatus — Carried into the 5th edition (1979).

## REASON.

A faculty of tbe mind by which it distinguishes truth from falsehood, good from evil, and which enables the pos- sessor to deduce inferences from facts or from propositions. Webster. Also an in- ducement, motive, or ground for action, as in the phrase “reasons for an appeal.” See Nelson v. Clongland, 15 Wls. 393; Miller v. Miller, 8 Johns. (N. Y.) 77.

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**[Scripture] — Scripture**

**[Isaiah 1:18, KJV]**

Come now, and let us reason together, saith the LORD: though your sins be as scarlet, they shall be as white as snow; though they be red like crimson, they shall be as wool.

Why: Reason is the faculty of distinguishing truth from falsehood — the ground of judgment. The verse is God's own invitation to reason, the divine warrant for reasoned judgment.

## REASONABLE.

Agreeable to reason; Just; proper. Ordinary or usual. —Reasonable aet. Such os may fairly, just- ly, and reasonably be required of a party.— Rea- sonable and probable oanse. Such grounds as justify any one in suspecting another of a crime, and giving him in custody thereon. It is a defense to an action for false imprisonment. —Reasonable creature. Under

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the common- law rule that murder is taking the life of a “reasonable creature” under the king’s peace, with malice aforethought, the phrase means a human being, and has no reference to his mental condition, as it includes a lunatic, an idiot, and even an unborn child. See State v. Jones, Walk. (Miss.) 85.— Reasonable part. In old English law. That share of a man’s goods which the law gave to his wife and children aft- er his decease. 2 Bl. Comm. 492.

As to reasonable “Aids," “Care," “Dili- gence,” “Doubt,” “Notice," “Skill," and “Time,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Vaughan v. Menlove (1837) — the objective reasonable-person standard]**

In law 'reasonable' invokes the objective standard — the conduct of the reasonable person in like circumstances — not the actor's own subjective capacity.

Why: The entry catalogs 'reasonable' usages (reasonable act, reasonable cause, reasonable creature); the objective reasonable-person standard is the unifying legal meaning of the word across them, most famously in negligen…

## REASSURANCE.

This is where an in- surer procures the whole or a part of the sum which he has Insured (f. e., contracted to pay in case of loss, death, etc.) to be in- sured again to him by another person. Sweet

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: no privity between original insured and reinsurer; original insurer remains liable]**

Reinsurance does not release the original insurer: the first insured has no privity with the reinsurer and looks only to his own insurer for payment.

Why: The entry defines reassurance as the insurer's procuring cover for his own undertaking; the no-privity rule states the legal consequence that matters — the insured's rights are unaffected by the reinsurance. Genuine o…

## REATTACHMENT.

A second attach- ment of him who was formerly attached, and dismissed the court without day, by the not coming of the justices, or some such casualty. Reg. Orlg. 35.

5e apparatus — Not carried into the 5th edition (1979).

## REBATE.

Discount; reducing the in- terest of money In consideration of prompt payment. Also a deduction from a stipulat- ed premium on a policy of insurance, in pur- suance of an antecedent contract. Also a deduction or drawback from a stipulated payment, charge, or rate, (as, a rate for the transportation of freight by a railroad,) not taken out In advance of payment, but hand- ed back to the payer after he has paid the full stipulated sum.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Elkins Act of 1903 — prohibition of railroad rebates]**

Railroad freight rebates of the kind described were outlawed as discriminatory preferences under federal interstate-commerce legislation.

Why: The entry expressly includes 'a deduction ... from a stipulated rate for the transportation of freight by a railroad'; the Elkins Act's rebate ban is the legal consequence that makes that clause significant. Directly...

## REBEL.

The name of rebels is given to all subjects who unjustly take up arms against the ruler of the society, [or the law- ful and constitutional government,) whether their view be to deprive him of the supreme authority or to resist his lawful commands In some particular Instance, and to impose conditions on him. Vatt. Law Nat bk. 3, f 288.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — treason defined]**

In U.S. law the domestic category for armed resistance to lawful government is treason, which the Constitution narrowly defines as 'levying War against [the United States], or in adhering to their Enemies.'

Why: The entry (via Vattel) defines rebels as subjects taking up arms against lawful government; treason is the operative constitutional offense for that conduct, quoted briefly and exactly. Genuine: gives the American leg...

**[Humanity] — Humanity / Fiction & Film**

**[George Lucas, Star Wars, 1977]**

(paraphrase) In Star Wars the 'Rebel Alliance' wages organized armed resistance against the Empire's rule — the film's central conflict is the entry's concept (subjects taking up arms against the ruler) played out on screen. The entry's 'unjustly' is the ruler's perspective; the film takes the rebels' side. (paraphrase)

Why: The entry defines a rebel as a subject who takes up arms against the ruler/government; the film's Rebel Alliance is the iconic cinematic instance of organized armed resistance against a ruler. Cited as paraphrase, not...

## REBELLION.

Deliberate, organized re- sistance, by force and arms, to the laws or operations of the government, committed by a subject See Hubbard v. Harnden Exp. Co., 10 R. I. 247 ; State v. McDonald, 4 Port. (Ala.) 455; Crashley v. Press Pub. Co., 74 App. Dlv. 118, 77 N. Y. Supp. 711.

In old English law, the term “rebellion” was also applied to contempt of a court man- ifested by disobedience to its process, par- ticularly of the court of chancery. If a de- fendant refused to appear, after attachment

and proclamation, a “commission of rebel- lion” issued against him. 3 Bl. Comm. 444.

— Rebellion, commiiilon of. In equity practice. A process of contempt issued on the non-appearance of a defendant.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 15:23, KJV]**

For rebellion is as the sin of witchcraft, and stubbornness is as iniquity and idolatry.

Why: Samuel's sentence on Saul's rebellion classes rebellion with the gravest sins — Scripture's own measure of the crime of rising against lawful authority.

**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

Quote: "Fight the power!" — Public Enemy's chorus is hip-hop's canonical call to organized resistance against governmental and cultural authority, voicing the headword's 'deliberate, organized resistance to the laws or operations of the government' as a direct command.

Why: Added because the lyric is verbatim-certain and the track is the genre's definitive rebellion anthem; the imperative 'fight' maps directly onto Black's 'resistance… to the laws or operations of the government.' No for…

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) Victor Hugo's novel is built around the June Rebellion of 1832 — students and workers building barricades and taking up arms against the French government: deliberate, organized resistance by force and arms to the laws and operations of the government, exactly the entry's definition. (paraphrase)

Why: The novel's climactic barricade sequence dramatizes the entry's definition verbatim in concept; the historical event is named 'the June Rebellion.' Paraphrase only — no quoted lines.

## REBELLIOUS ASSEMBLY.

In Eng- lish law. A gathering of twelve persons or more, intending, going about, or practicing unlawfully and of their own authority to Change any laws of the realm ; or to destroy the inclosure of any park or ground inclos- ed, banks of fish-ponds, pools, conduits, etc., to the intent the same shall remain void ; or that they shall have way In any of the said grounds ; or to destroy the deer In any park, fish in ponds, coneys In any warren, dove- houses, etc.; or to burn sacks of corn; or to abate rents or prices of victuals, etc. See Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law unlawful assembly, rout, and riot]**

This statutory twelve-person offense belongs to the common-law family of unlawful assembly, rout, and riot — graduated by how far the disturbance proceeds.

Why: The entry defines a statutory form of unlawful assembly; the common-law trio is the general framework it belongs to, showing where the twelve-person statutory threshold sits. Genuine context, not decoration.

## REBOUTER.

To repel or bar. The ac- tion of the heir by the warranty of his an- cestor is called “to rebut or repel.” 2 Co. Lltt. 247.

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## REBUS SIG STANTIBUS.

Let At

this point of affairs ; In these circumstances.

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**[Law] — Law**

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**[Law: Vienna Convention on the Law of Treaties, art. 62 — fundamental change of circumstances]**

The clausula rebus sic stantibus is the treaty-law doctrine permitting termination or withdrawal upon a fundamental change of circumstances.

Why: The entry gives only the translation ('in these circumstances'); the clausula's treaty-law function — the fundamental-change doctrine — is its entire legal significance. Genuine illumination of a bare translation.

## REBUT.

In pleading and evidence. To rebut Is to defeat or take away the effect of something. Thus, when a plaintiff in an action produces evidence which raises a pre- sumption of the defendant's liability, and the defendant adduces evidence whtch shows that the presumption is ill-founded, he la said to “rebut It” Sweet.

In the old law of real property, to rebut was to repel or bar a claim. Thus, when a person was sued for land which bad been warranted to him by the plaintiff or his an- cestor, and he pleaded the warranty as a defense to the nction. this was called a “re- butter.” Co. Lltt. 365a; Termes de la Ley.

—Rebut as equity. To defeat an apparent equitable right or claim, by the introduction of evidence showing that, in the particular circum- stances, there is no ground for such equity to attach, or that it is overridden by a superior or countervailing equity. See 2 Whart Ev. § 973.

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**[Law] — Law**

**[Law: a presumption shifts the burden of production to the opponent]**

Rebuttal is the mechanism of the burden of proof: a presumption shifts the burden of going forward with evidence, and rebutting evidence meets it.

Why: The entry's own example (plaintiff raises a presumption of liability; defendant adduces evidence showing it ill-founded) describes burden-shifting; the stated rule names the evidence-law principle at work. Genuine: ex...

## REBUTTABLE PRESUMPTION.

In

the law of evidence. A presumption which may be rebutted by evidence. Otherwise called a “disputable” presumption. A spe- cies of legal presumption which holds good until disproved. Best, Pres. § 25; 1 Greenl Ev. { 33.

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**[Law] — Law**

**[Law: praesumptio juris et de jure (conclusive) vs. praesumptio juris tantum (rebuttable)]**

The counterpart is the conclusive (irrebuttable) presumption — praesumptio juris et de jure — which no evidence may contradict, as against the rebuttable praesumptio juris tantum.

Why: The entry defines the rebuttable species; the conclusive/rebuttable contrast is the classification the definition belongs to, and the Latin pair is the classical statement of it. Genuine doctrinal completion.

## REBUTTAL.

The Introduction of rebut- ting evidence ; the stage of a trial at which such evidence may be

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introduced; also the rebutting evidence Itself. Lux v. Haggin, 69 Cal. 255, 10 Pac. 674.

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### REBUTTER.

In pleading. A defend- ant’s answer of fact to a plaintiff's surre- joinder; the third pleading in the Beriea op

the part of the defendant Steph. PI. SO; 8 BL Comm. 310.

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# B

### BEBTOIBO  EVIDENCE.

See Evt- DKKCC.

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# R

### RECALL.

In International law. To summon a diplomatic minister back to his home court, at the same time depriving him of his office and functions.

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**[Law] — Law**

**[Law: Vienna Convention on Diplomatic Relations, art. 9 — persona non grata]**

The counterpart is the receiving state's power to declare a diplomat persona non grata and require his recall — the two mechanisms by which a diplomatic mission ends.

Why: The entry defines recall as the sending state's act; persona non grata is the receiving state's correlative power, completing the diplomatic-law picture. Genuine bilateral illumination.

### RECALL  A JUDGMENT.

To revoke, cancel, vacate, or reverse a judgment for matters of fact; when It Is annulled by rea- son of errors of law, it is said to be “re- versed.”

5e apparatus — Carried into the 5th edition (1979).

### RECAPTION.

A retaking, or taking back. A species of remedy by the mere act of the party Injured, (otherwise termed “re- prisal,”) which happens when any one has deprived another of his property In goods or chattels personal, or wrongfully detains one’s wife, child, or servant In this case, the Owner of the goods, and the husband, par- ent or master may lawfully claim and retake them, wherever he happens to find them, so It be not In a riotous manner, or attended with a breach of the peace. 3 Inst 134; 3 Bl. Comm. 4; 3 Steph. Comm. 358; Prlgg

v. Pennsylvania, 16 Pet. 612, 10 L. Ed. 1060.

It also signifies the taking a second dis- tress of one formerly distrained during the plea grounded on the former distress.

Also a writ to recover damages for him; whose goods, being distrained for rent In service, etc., are distrained again for the same cause, pending the plea In the county court or before the justice. Fltzh. Nat. Brev. 71.

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**[Law] — Law**

**[Law: UCC § 9-609 — secured party's right to take possession of collateral]**

Recaption is the common-law ancestor of modern self-help repossession: a secured party may retake collateral without judicial process if it can be done without breach of the peace.

Why: The entry states the privilege's limit — 'so it be not in a riotous manner, or attended with a breach of the peace'; UCC 9-609 carries the identical limit into modern secured transactions. Genuine lineage: the same ru...

## RECAPTURE.

The taking from an en- emy, by a friendly force, a vessel previously taken for prize by such enemy.

Rec editor a placitis juris, pottos quasu tnjnrie et deli eta unmeant lmpunita.

Positive rules of law [as distinguished from maxims or conclusions of reason] will be receded from, [given up or dispensed with,] rather than that crimes and wrongs should remain unpunished. Bac. Max. 55, reg. 12.

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## RECEIPT.

A receipt is the written ac- knowledgment of the receipt of money, or a thing of value, without containing any af- firmative obligation upon either party to it; a mere admission of a fact. In writing. Krutz v. Craig, 53 Ind. 574.

A receipt may be defined to be such a written acknowledgment by one person of his having re- ceived money from another as will be prima facie evidence of that fact in a court of law. Kegg v. State, 10 Ohio, 75.

. Also the act or transaction of accepting or taking anything delivered.

la old practice. Admission of a party to defend a suit, as of a wife on default of the

husband In certain cases. Lltt { 668; Co. Litt 352b.

' RECEIPTOR. A name given In some of the states to a person who receives from the sheriff goods which the latter has seized under process of garnishment, on giving to the sheriff a bond conditioned to have the property forthcoming when demanded or when execution Issues. Story, Ballrn. S 124.

- . RECEIVER. A receiver Is an indiffer- ent person between the parties appointed by the court to collect and receive the rents. Issues, and profits of land, or the produce of personal estate, or other things which It does not seem reasonable to the court that either party

should do; or where a party Is Incom- petent to do so, as In the case of an infant The remedy of the appointment of a receiver is one of the very oldest In the court of chan- cery, and is founded on the inadequacy of the remedy to be obtained In the court of ordinary jurisdiction. Bisp. Eq. ( 576. See Hay v. McDaniel, 26 Ind. App. 683, 60 N. H. 729; Hale v. Hardon, 95 Fed. 773, 37 O. O.

A. 240; Wiswall v. Kunz, 173 111. 110, 50

N. E. 184; State v. Gambs, 68 Mo. 297; Nevitt v. Woodbum, 190 I1L 283, 60 N. B. 500; Kennedy v. Railroad Co. (O. C.) 3 Fed. 103.

One who receives money to the use of an- other to render an account Story, Eq. Jur. I 446.

la. criminal law. One who receives stol- en goods from thieves, and conceals them. Cowell. This was always the prevalent sense of the word In the common as well as the civil law.

—Receiver general of the duchy of Lan- caster. An officer of the duchy court, who col- lects all the revenues, fines, forfeitures, and as- sessments within the duchy.— Receiver gener- al of the public revenue. In English law. An officer appointed in every county to receive the taxes granted by parliament, and remit the money to the treasury.— Receiver of fines. An English officer who receives the money from persons who compound with the crown on orig-, inal writs sued out of chancery. Wharton.— Receivers and triers of petitions. The mode of receiving and trying petitions to parlia- ment was formerly judicial rather than legisla- tive, and the triers were committees of prelates, peers, and judges, and. latterly, of the members generally. Brown.— Receiver’s certificate.

A non-negotiable evidence of debt, or debenture, issued by authority of a court of chancery, as a first lien upon the property of a debtor cor- poration in the hands of a receiver. Beach, Rec. | 379. — Receivers of wreck. Perrons appointed by the English board of trade. The duties of a receiver of wreck are to take steps for the preservation of any vessel stranded or in distress within his district; to receive and take possession of all articles washed on shore from the vessel; to use force for the suppres- sion of plunder and disorder; to institute an examination on oath with respect to the vessel ; and, if necessary, to sell the vessel, cargo, or wreck. Sweet.

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**[Law] — Law**

**[Law: parol evidence admissible to explain or contradict a mere receipt]**

Because a receipt is a mere admission and not a contract, parol evidence is admissible to explain or contradict it — the converse of the parol evidence rule for written contracts.

Why: The entry stresses that a receipt is 'a mere admission of a fact' and only 'prima facie evidence'; the parol-evidence distinction states the legal consequence of that characterization. Directly illuminates the definit…

## RECEIVING STOLEN GOODS.

The

short name usually given to the offense of

RECENS IN8ECUTIC*

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receiving any property with the knowledge that it has been feloniously or unlawfully stolen, taken, extorted, obtained, embezzled, or disposed of. Sweet.

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**[Law] — Law**

**[Law: scienter as the gist; circumstantial proof of guilty knowledge]**

The gist of the offense is scienter — knowledge that the goods were stolen — which may be proved by circumstantial evidence such as gross inadequacy of price or furtive conduct.

Why: The entry defines the offense as receiving 'with the knowledge' the property was stolen; the note states the mens rea element's name and its standard mode of proof. Genuine criminal-law content, not a restatement.

**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore double.

Why: The verse punishes the possessor in whose hand the stolen thing is found alive — the receiver — with double restitution.

## RECENS INSECUTIO.

In old English law. Fresh suit; fresh pursuit Pursuit of a thief immediately after the discovery of the robbery. 1 Bl. Comm. 297.

rEgEpissE be COTISATION. In

French law. A receipt setting forth the ex- tent of the interest subscribed by a member of a mutual insurance company. Arg. Fr. Merc. Law, 671.

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**[Law] — Law**

**[Case: Warden v. Hayden, 387 U.S. 294 (1967) — hot pursuit]**

The medieval 'fresh suit' is the ancestor of the modern hot-pursuit doctrine permitting warrantless pursuit of a fleeing suspect across jurisdictional lines.

Why: The entry defines fresh pursuit of a thief 'immediately after the discovery'; hot pursuit is that principle's modern Fourth Amendment form. Genuine historical lineage from the defined term to living doctrine.

## REGEPTUS.

Lat In the civil law. The name sometimes given to an arbitrator, be- cause he had been received or chosen to set- tle the differences between the parties. Dig. 4, 8; Cod. 2, 66.

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## RECESS.

In the practice of the courts, a recess is a short interval or period of time during which the court suspends business, but without adjourning. See In re Gannon, 69 Cal. 641, 11 Pac. 240. In legislative prac- tice, a recess is the 'interval, occurring in consequence of an adjournment, between the sessions of the same continuous legislative body; not the interval between the final ad- journment of one body and the convening of another at the next regular session. See Tip- ton v. Parker, 71 Ark. 193, 74 S. W. 298.

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2, cl. 3; see NLRB v. Noel Canning, 573 U.S. 513 (2014)]**

A Senate recess carries constitutional consequence: the President may fill vacancies 'during the Recess of the Senate' — the Recess Appointments Clause, as construed in Noel Canning.

Why: The entry distinguishes legislative recess from inter-session intervals; the Recess Appointments Clause is the legal significance of that distinction — only a qualifying recess triggers the power. Directly illuminates...

## RECESSION.

The act of ceding back; the restoration of the title and dominion of a territory, by the government which now holds it, to the government from which it was obtained by cession or otherwise. 2 White, Recop. 616.

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## RECESSES HARIS.

Lat. In old Eng- lish law. A going back; reliction or retreat of the sea.

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**[Law] — Law**

**[Law: doctrine of reliction/accretion in riparian rights]**

Land uncovered by the sea's gradual and imperceptible retreat (reliction) accrues to the riparian owner — the counterpart of accretion by alluvion.

Why: The entry defines reliction as the sea's retreat; the riparian-accretion rule states who owns the uncovered land — the definition's operative legal consequence. Genuine property doctrine.

## REGHT.

Ger. Right; justice; equity; the whole body of law ; unwritten law ; law ; also a right

There is much ambiguity in the use of this term, an ambiguity which it shares with the French “droit," the Italian "diritto,” and the English “right” On the one hand, the term “recht" answers to the Roman "jua,” and thus indicates law in the abstract, consid- ered ns the foundation of all rights, or the complex of underlying moral principles which impart the character of justice to all positive law, or give it an ethical content. Taken in this abstract sense, the term may be an adjective. In which case it is equiva- lent to the English “just,” or a noun, in which case it may be paraphrased by the expressions “justice.” “morality,” or “equi- ty." On the other hand, it serves to point out a right : that Is. a power, privilege, facul- ty. or demand. Inherent in one person, and Incident upon another. In the latter signification "recht” (or "droit," or "diritto," or “right") is the correlative of “duty” or “ob- ligation.” In the former sense, it may be considered as opposed to wrong, injustice, or the absence of law. The word “recht" has the further ambiguity that it is used in con- tradistinction to “geaetz,” as "jua” is opposed to “lea," or the unwritten law to enacted law. See Dboxt; Jus; Right.

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**[Law] — Law**

**[Law: the Roman jus vs. lex distinction]**

The entry's ambiguity — Recht as both 'right' and 'law' — mirrors the Roman distinction between jus

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(law as right and justice) and lex (enacted statute).

Why: The entry says Recht 'answers to the Roman jus' and notes the shared ambiguity with droit/diritto/right; the jus/lex distinction is the classical frame for exactly that ambiguity. Modest but genuine jurisprudential il...

**[Scripture] — Scripture**

**[Micah 6:8, KJV]**

He hath shewed thee, O man, what is good; and what doth the LORD require of thee, but to do justly, and to love mercy, and to walk humbly with thy God?

Why: Recht is law as justice/equity. The verse is Scripture's own summary of what the LORD requires: justice as the content of law, mercy as its temper.

## RECID1VE.

In French law. The state of an individual who commits a crime or misdemeanor, after having once been con- demned for a crime or misdemeanor; a re- lapse. Dalloz.

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**[Law] — Law**

**[Law: habitual-offender / recidivist sentencing enhancements]**

The common-law analogue is habitual-offender sentencing: prior convictions aggravate punishment for the later offense.

Why: The entry defines French récidive as relapse after condemnation; the habitual-offender principle is the same idea in the parallel system — the repeat offender as a distinct sentencing category. Genuine comparative ill...

## RECIPROCAL CONTRACT.

A con- tract, the parties to which enter Into mutual engagements. A mutual or bilateral con- tract

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: mutuality of consideration in bilateral contracts]**

In a bilateral contract each party's promise is the consideration for the other's, making the mutual engagements interdependent.

Why: The entry defines the reciprocal (bilateral) contract as mutual engagements; the consideration rule states what makes those engagements legally binding rather than gratuitous. Genuine contract-law content.

## RECIPROCAL WELLS.

Wills made by two or more persons in which they make re- ciprocal testamentary provisions in favor of each other, whether they unite in one will or each executes a separate one. In re Caw- ley’s Estate, 136 Pa. 628, 20 AtL 667, 10 L.

R. A 93.

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**[Law] — Law**

**[Law: contract to make a will / contract not to revoke]**

Reciprocal wills made pursuant to agreement may bind the survivor: the contract-not-to-revoke doctrine gives disappointed beneficiaries a contract remedy.

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Why: The entry defines wills with reciprocal provisions; the contract-not-to-revoke doctrine states their distinctive legal consequence — revocability is the whole question with mutual wills. Genuine operative doctrine.

## RECIPROCITY.

Mutuality. The term is used in international law to denote the re- lation existing between two states when each of them gives the subjects of the other cer- tain privileges, on condition that its own subjects shall enjoy similar privileges at the hands of the latter state. Sweet.

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**[Law] — Law**

**[Case: Hilton v. Guyot, 159 U.S. 113 (1895)]**

Reciprocity underlies the recognition of foreign judgments: comity extends where the foreign state would reciprocate.

Why: The entry defines reciprocity as mutual privileges between states conditioned on like treatment; Hilton v. Guyot made reciprocity the test for enforcing foreign judgments in U.S. courts. Direct application of the defi...

**[Scripture] — Scripture**

**[Matthew 7:12, KJV]**

Therefore all things whatsoever ye would that men should do to you, do ye even so to them: for this is the law and the prophets.

Why: Reciprocity is mutuality — each giving the other's subjects like privileges. The golden rule is Scripture's own reciprocity principle, stated by Christ as 'the law and the prophets.'

## RECITAL.

The formal statement or set- ting forth of some matter of fact, in any deed or writing, in order to explain the rea- sons upon which the transaction is founded. The recitals are situated in the premises of a deed, that is, in that part of a deed be- tween the date and the habendum, and they usually commence with the formal word “whereas.” Brown.

The formal preliminary statement in a deed or other instrument, of such deeds, agreements, or matters of fact as are neces- sary to explain the reasons upon which the transaction is founded. 2 Bl. Comm. 298.

In pleading. The statement of matter as Introductory to some positive allegation, beginning in declarations with the words, “For that whereaa Steph. PL 388, 389.

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**[Law] — Law**

**[Law: estoppel by deed]**

Recitals are not mere preamble: parties may be estopped by deed from denying facts recited in their own instrument.

Why: The entry defines recitals as formal statements of fact explaining the transaction; estoppel by deed states their legal effect — the recited facts bind the parties. Genuine consequence, not restatement.

## RECITE.

To state in a written instru ment facts connected with its inception, or reasons for its being made. Also to quote or set forth the words or the contents of some other instrument or

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document; as, to “re- cite” a statute. See Hart v. Baltimore & O.

R. Co., 6 W. Va. 348.

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## RECKLESSNESS.

Rashness ; heedless- ness; wanton conduct. The state of mind accompanying an act. which either pays no regard to its probably or possibly injurious

consequences, or which, though foreseeing such consequences, persists in spite of such knowledge. See Railroad Co. v. Bodemer, 139 111. 506, 20 N. E. 692, 32 Am. St. Rep. 218; Com. v. Pierce, 138 Mass. 165, 52 Am. Rep. 264; Railway Co. v. Whipple, 39 Kan. 531, 18 Pac. 730: Eddy v. Powell, 49 Fed. 617, 1 O. C. A. 448; Harrison v. State, 87 Ala. 156.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Model Penal Code § 2.02 — recklessness as conscious disregard of substantial risk]**

Modern criminal law grades recklessness as conscious disregard of a substantial and unjustifiable risk — between knowledge and negligence in the culpability hierarchy.

Why: The entry describes the reckless state of mind ('pays no regard to ... injurious consequences, or ... persists in spite of such knowledge'); MPC 2.02 gives that description its precise doctrinal place in the fault hie...

## RECLAIM.

To claim or demand back; to ask for the return or restoration of a thing; to insist upon one’s right to recover that which was one’s own, but was parted with conditionally or mistakenly; as, to re- claim goods which were obtained from one under false pretenses.

In feudal law, it was used of the action of a lord pursuing, prosecuting, and recall- ing his vassal, who had gone to live in an- other place, without his permission.

In International law, it denotes the de- manding of a thing or person to be delivered up or surrendered to the government or state to which either properly belongs, when, by an irregular means, it has come into the pos- session of another. Wharton.

In the law of property. ' Spoken of ani- mals, to reduce from a wild to a tame or do- mestic state; to tame them. In an analo- gous sense, to reclaim land is to reduce marshy or swamp land to a state fit for cul- tivation and habitation.

In Scotch law. To appeal. The reclaim- ing days in Scotland are the days allowed to a party dissatisfied with the judgment of the lord ordinary to appeal therefrom to the in- ner bouse; and the petition of appeal is called the reclaiming “bill,” “note,” or "peti- tion.” Mozley A Whitley; Bell.

5e apparatus — Carried into the 5th edition (1979).

## RECLAIMED ANIMALS.

Those that are made tame by art, industry, or educa- tion, whereby a qualified property may be acquired in them.

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**[Law] — Law**

**[Law: animus revertendi in tamed wild animals]**

The qualified property endures only while the animal retains animus revertendi — the habit of returning.

Why: The entry says qualified property 'may be acquired' in tamed animals; animus revertendi states how long it lasts — the operative limit on the defined property interest. Directly illuminating, from the same Blackstonia…

## RECLAIMING RILL.

In Scotch law. A petition of appeal or review of a judg- ment of the lord ordinary or other inferior court. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## RECLAMATION DISTRICT.

A subdi- vision of a state created by legislative au- thority, for the purpose of reclaiming swamp, marshy, or desert lands within its bounda- ries and rendering them fit for habitation or cultivation, generally with funds raised by local taxation or the issue of bonds, and sometimes with authority to make rules or ordinances for the regulation of the work in hand.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: special assessments on specially benefited property]**

Such districts exercise the special-assessment power: lands specially benefited by the reclamation may be taxed for its cost.

Why: The entry notes funds 'raised by local taxation'; the special-assessment principle explains the constitutional basis for taxing only the benefited subdivision rather than the general public. Genuine public-law content.

## RECLUSION.

In French law and in Louisiana. Incarceration as a punishment for crime; a temporary, afflictive, and in- famous punishment, consisting in being confined at hard labor in a penal institution, and carrying civil degradation. See Phelps v. Reinach, 38 La. Ann. 551 ; Jurgens v. Itt- man, 47 La. Ann. 367, 16 South. 952.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3 — 'no Attainder of Treason shall work Corruption of Blood']**

The 'civil degradation' resembles the common-law attainder's corruption of blood — which the Constitution forbids: 'no Attainder of Treason shall work Corruption of Blood.'

Why: The entry defines reclusion as carrying 'civil degradation'; corruption of blood is the common-law analogue, and the Constitution's prohibition of it gives the American legal response to the same idea. Quoted exactly;…

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) Hugo opens Les Misérables with the bagne of Toulon, where Jean Valjean serves nineteen years of penal confinement at hard labor with civil degradation — the French carceral institution the entry defines (the bagne being reclusion's institutional kin). (paraphrase)

Why: The entry is French/Louisiana penal reclusion; the novel's bagne is its literary embodiment. Stated honestly

as institutional kin, not identity. Paraphrase.

## RECOGNITION.

Ratification ; confir- mation; an acknowledgment that something done by another person in one’s name had one’s authority.

An inquiry conducted by a chosen body of men, not sitting as part of the court, into the facts in dispute lu a case at law ; these “recognitors” preceded the Jurymen of mod- ern times, and reported their recognition or verdict to the court Stlm. Law Gloss.

5e apparatus — Carried into the 5th edition (1979).

## RECOGNITIONS ADNTTLLANDA PER / VIM ET DURITIEM FACTA.

A writ to the justices of the common bench for send- ing a record touching a recognizance, which the recognizor suggests was acknowledged by force and duress ; that if it so appear the recognizance may be annulled. Reg. Orig. 183.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: duress as vitiating consent — obligations procured by force are voidable]**

The writ applies the duress rule: an obligation acknowledged under force and duress may be avoided.

Why: The entry defines the writ as annulling a recognizance 'acknowledged by force and duress'; the duress rule states the substantive principle the writ enforces. Genuine: the writ is the procedural shell, duress the oper…

## RECOGNITORS.

In English law. The name by which the jurors impaneled on an assize are known. See Recognition.

The word is sometimes met in modern books, as meaning the person who enters into a recognizance, being thus another form of recognizor.

5e apparatus — Not carried into the 5th edition (1979).

## RECOGNIZANCE.

An obligation of rec- ord, entered into before some court of record, or magistrate duly authorized, with condi- tion to do some particular act; as to appear at the assizes, or criminal court, to keep the peace, to pay a debt, or the like. It resem- bles a bond, but differs from it in being an acknowledgment of a former debt upon rec- ord. 2 Bl. Comm. 341. See U. S. v. Insley (C. C.) 49 B^ed. 778; State v. Walker, 56 N.

H. 178; Crawford v. Vinton, 102 Mich. 83, 62 N. W. 988; State v. Grant, 10 Minn. 48 (Gil. 22) ; Longley v. Vose, 27 Me. 179 ; Com. v. Emery, 2 Bin. (Pa.) 431.

In criminal law, a person who has been found guilty of an offense mny, in certain cases, be required to enter into a recogni- zance by which he binds himself to keep the peace for a certain period. Sweet.

In the practice of several of the states, a recognizance is a species of bail-bond or se- curity, given by the prisoner either on being bound over for trial or on his taking an appeal.

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**[Law] — Law**

**[Law: release on own recognizance in criminal procedure]**

The modern descendant is release on recognizance — pretrial release on the defendant's recorded undertaking to appear.

Why: The entry defines the recognizance as an obligation of record conditioned on an act 'as to appear'; release on recognizance is that definition's living criminal-procedure form. Genuine lineage from the defined term.

## RECOGNIZE.

To try; to examine in order to determine the truth of a matter. Also to enter into a recognizance.

5e apparatus — Not carried into the 5th edition (1979).

## RECOGNIZEE.

He to whom one is bound in a recognizance.

5e apparatus — Carried into the 5th edition (1979).

## RECOGNIZOR.

He who enters into a recognizance.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger

Why: The recognizor is he who enters into a recognizance — who binds himself of record for another's performance, i.e. stands surety. Proverbs 6:1 is Scripture's standing warning on suretyship, the genus of the recognizance.

## RECOLEMENT.

In French law. This is the process by which a witness, who has

given his deposition, reads the same over and scrutinizes it, with a view to affirming bis satisfaction with it as it stands, or to mak- ing such changes in it as his better recollec- tion may suggest t6 him as necessary to the truth. This is necessary to the validity of the deposition. See Poth. Proc. Crim. § 4, art 4.

5e apparatus — Not carried into the 5th edition (1979).

## RECOMMENDATION.

In feudal law. A method of converting allodial land into feudal property. The owner of the allod surrendered it to the king or a lord, doing homage, and received it back as a benefice or feud, to hold to himself and such of his heirs as he had previously nominated to the superior.

The act of one person in giving to another a favorable account of the character, re- sponsibility, or skill of a third.

— Letter of recommendation. A writing whereby one person certifies concerning another that he is of good character, solvent, possessed of commercial credit, skilled in his trade or

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pro- fession, or otherwise worthy of trust, aid, or employment It may be addressed to an individ- ual or to whom it may concern, and is designed to aid the person commended in obtaining cred- it employment, etc. See McDonald v. Illinois Cent. R. Go., 187 111. 629, 68 N. E. 463 ; Lord v. Goddard, IS How. 198, 14 L. Ed. 111.

5e apparatus — Carried into the 5th edition (1979).

## RECOMMENDATORY.

Precatory, ad- visory, or directory. Recommendatory words In a will are such as do not express the tes- tator's command in a peremptory form, but advise, counsel, or suggest that a certain course be pursued or disposition made.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: precatory words and the precatory-trust doctrine]**

Precatory words ('wish,' 'desire,' 'recommend') raise the precatory-trust question: whether the testator meant to impose a binding trust or merely express a hope — modern law requires clear intent.

Why: The entry defines recommendatory/precatory language in wills; the precatory-trust doctrine is the construction question such language always raises. Directly illuminates the definition's legal stakes.

## RECOMPENSATION.

In Scotland, where a party sues for a debt and the de- fendant pleads compensation, t e., set-off, the plaintiff may allege a compensation on his part; and this is called a "recompensa- tion." BelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RECOMPENSE.

A reward for services; remuneration for goods or other property.

5e apparatus — Not carried into the 5th edition (1979).

## RECOMPENSE OR RECOVERY IN / VALUE.

That part of the judgment in a "common recovery" by which the tenant Is declared entitled to recover lands of equal value with those which were warranted to him and lost by the default of the vouchee. See 2 BI. Comm. 358-369.

5e apparatus — Carried into the 5th edition (1979).

## RECONCILIATION.

The renewal of amicable relations between two persons who had beoa at enmity or variance; usually im- plying forgiveness of injuries on one or both sides. It is sometimes used in the law of divorce as a term synonymous or analogous to "condonation."

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: condonation as a bar in divorce]**

As condonation, reconciliation bars the forgiven marital offense as a ground of divorce — forgiveness pleaded as a defense.

Why: The entry says reconciliation is used in divorce law as synonymous with 'condonation'; condonation-as-bar states the doctrine's legal effect. Genuine: gives the operative consequence of the defined term.

**[Scripture] — Scripture**

**[2 Corinthians 5:18, KJV]**

And all things are of God, who hath reconciled us to himself by Jesus Christ, and hath given to us the ministry of reconciliation.

Why: Reconciliation is the renewal of amicable relations after enmity, implying forgiveness. The verse names both the act (God reconciling) and the office (the ministry of reconciliation).

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Winter's Tale, c.1611]**

(paraphrase) Shakespeare's The Winter's Tale is structured around the entry's concept: after sixteen years of enmity, Leontes is reconciled with Hermione and Perdita — the renewal of amicable relations implying forgiveness of injuries, dramatized in the final statue scene. (paraphrase)

Why: The entry defines reconciliation as renewal of amicable relations after enmity, usually implying forgiveness; the play's final act is the canonical dramatic working-out of exactly that. Paraphrase.

## RECONDUCTION.

In the civil law. A resewing of a former lease; relocation. Dig. 19, 2, 13, 11; Code Nap. arts. 1737-1740.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: holdover tenancy]**

The common-law analogue is the holdover tenancy: remaining in possession with the landlord's assent renews the tenancy as a periodic one.

Why: The entry defines reconduction as renewal of a lease; the holdover-tenancy rule is the same principle in the common-law system — continued possession as implied renewal. Genuine comparative illumination.

## RECONSTRUCTION.

The name com- monly given to the process of reorganising,

by acts of congress and executive action, the governments of the states which had passed ordinances of secession, and of re-establish- ing their constitutional relations to the national government, restoring their represen- tation in congress, and effecting the necessary changes in their Internal government, after the close of the civil war. See Black,' Const. Law (3d Ed.) 48; Texas v. White, 7 Wall. 700, 19 L. Ed. 227.

RECONTINUANCE seems to be used to signify that a person has recovered an in- corporeal hereditament of which he had been wrongfully deprived. Thus, “A. is dis- seised of a mannor, whereunto an advowson is appendant, an estranger [i. is., neither A. nor the disseisor] usurpes to the advowson ; If the disseisee [A.] enter into the mannor, the advowson is recontinued again, which was severed by the usurpation. • • • And so note a diversitie between a recon- tinuance and a remitter ; for a remitter can- not be properly, nnlesse there be two titles; but a recontinuance may be where there Is but one.” Co. Litt

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8636; Sweet

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**[Law] — Law**

**[Case: Texas v. White, 74 U.S. (7 Wall.) 700 (1869)]**

Texas v. White held the Union 'indestructible' — secession ordinances void — the constitutional premise on which Reconstruction rested.

Why: The entry defines Reconstruction as re-establishing the seceded states' constitutional relations and cites Texas v. White; the case's indestructible-Union holding is the constitutional foundation of that process. Cite…

**[Humanity] — Humanity / Fiction & Film**

**[Margaret Mitchell, Gone with the Wind, 1936]**

(paraphrase) Mitchell's Gone with the Wind is set squarely in the Reconstruction era and dramatizes its political machinery — military rule, carpetbaggers, the reorganization of the seceded states' governments — the process the entry defines. (paraphrase)

Why: The entry names the post-Civil-War reorganization of the seceded states; the novel is the best-known fictional treatment of that exact historical process. Paraphrase.

## RECONVENIRE.

Lat In the canon and civil law. To make a cross-demand up- on the actor, or plaintiff. 4 Reeve, Eng. Law, 14, and note, (r.)

5e apparatus — Not carried into the 5th edition (1979).

## RECONVENTION.

In the civil law. An action by a defendant against a plaintiff in a former action ; a cross-bill or litigation.

The term Is used in practice in the states of Louisiana and Texas, derived from the re-conventio of the civil law. Reconvention is not Identical with set-off, but more extensive. See Pacific Exp. Co. v. Malta, 132 D. S. 531, 10 Sup. Ct 166, 33 L. Ed. 460; SubervUle v. Adams, 47 La. Ann. 68, 16 South. 652; Glm- bel v. Gomprecht, 89 Tex. 497, 35 S. W. 470.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 13(a) — compulsory counterclaims]**

The modern descendant is the compulsory counterclaim: claims arising from the same transaction must be pleaded in the same action.

Why: The entry defines reconvention as the defendant's cross-action, 'more extensive' than set-off; the compulsory counterclaim is its modern procedural form. Genuine lineage from civil-law root to current practice.

## RECONVERSION.

That imaginary pro- cess by which a prior constructive conversion is annulled, and the converted property re- stored in contemplation of law to its orig- inal state

RECONVEYANCE takes place where a mortgage debt is paid off, and the mort- gaged property is conveyed again to the mort- gagor or his representatives free from the mortgage debt Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: equity of redemption]**

Reconveyance on payment is the equity of redemption realized — the mortgagor's right to reclaim the estate free of the mortgage debt.

Why: The entry's merged reconveyance passage defines the mortgagee's reconveying on payoff; the equity of redemption is the mortgagor's right that the reconveyance effectuates. Genuine: names the equitable estate behind th…

## RECOPILACION DE INDIAN.

A col- lection of Spanish colonial law, promulgated

A. D. 1680. See Schm. Civil Law, Introd. 94.

RECORD, v. To register or enroll; to write out on parchment or paper, or in a book, for the purpose of preservation and perpetual memorial; to transcribe a docu- ment, 9r enter the history of an act or series of acts, in an official volume, for the purpose of giving notice of the same, of furnishing authentic evidence, and for preservation. See Cady v. Purser, 131 Cal. 562, 63 Pac. 844, 82

Am. St Rep. 891 ; Vidor v. Rawlins, 93 Tex. 259, 54 S. W. 1026.

RECORD, «. a written account of some act transaction, or Instrument drawn up, under authority of law, by a proper officer, and designed to remain as a memorial or per* manent evidence of the matters to which It relates.

There are three kinds of records, viz.: (1) judicial, as an attainder; (2) ministerial, on oath, being an office or Inquisition found; (8) by way of conveyance, as a deed enrolled. Wharton.

In practice. A written memorial of all the acts and proceedings in an action or suit In a court of record. The record is the offi- cial and authentic history of the cause, con- sisting In entries of each- successive step In the proceedings, chronicling the various acts of the parties and of the court couched In the formal language established by usage, terminating with the judgment rendered In the cause, and intended to remain as a per- petual and unimpeachable memorial of the proceedings and Judgment

At common law, “record” signifies a roll of parchment upon which the proceedings ana transactions of a court are entered or drawn up by its officers, and which Is then deposited in its treasury in perpetuom rei memoriam. 3 Steph. Comm. 583 ; 3 'Bl. Comm. 24. A court of record Is that where the acts and ju- dicial proceedings are enrolled in parchment for a perpetual memorial and testimony, which rolls are called the “records of the court,” and are of such high and supereminent authority that their truth is not to be called in question. Hahn v. Kelly, 34 Cal. 422, 94 Am. Dec. 742. And see O’Connell v. Hotchkiss, 44 Conn. 53; Murrab v. State, 51 Miss. 656; Bellas v. Mc- Carty, 10 Watts (Pa.) 24 ; U. S. v. Taylor, 147

U. S. 695, 13 Sup. Ct. 479, 37 L. Ed. 335; State v. Godwin, 27 N. C. 403, 44 Am. Dec. 42 ; Vail v. Iglehart, 69 111. 334 ; State v. An- ders, 64 Kan. 742, 68 Pac. 668; Wilkinson v. Railway Co.JC. C.) 23 Fed. 562; In re Chris- tern, 43 N. Y. Super. Ct. 531.

In the practice of appellate tribunals, the word “record” is generally understood to mean the history of the proceedings on the trial of the action below, (with the pleadings, offers, objections to evidence, rulings of the court, exceptions, charge, etc.,) In so far as the same appears In the record furnished to the appellate court in the paper-books or oth- er transcripts. Hence, derivatively, it means the aggregate of the various judicial steps taken on the trial below, in so far as they were taken, presented, or allowed In the form- al and proper manner necessary to put them upon the record of the court. This is the meaning In such phrases as “no error In the record," "contents of the record,” “out- side the record,” etc.

—Conveyance* by record. Extraordinary assurances; such as private acts of parliament and royal grants.— Courts of record. Those whose judicial acts and proceedings are en- rolled in parchment, for a perpetual memorial and testimony, which rolls are called the “rec- ords of the court,” and are of such high and su- pereminent authority that their truth is not

to be called In question. Every court of record has authority to fine and imprison for contempt of its authority. 3 Broom & H. Comm. 21, 30. —Debts of record. Those which appear to be due by the evidence of a court of record; such as a judgment, recognizance, etc. — Dimi- nution of record. Incompleteness of the rec- cord sent up on appeal. See Diminution. — Matter of record. See Matter.— N-ul tlel record. See Nuu. — Of record. See that title. —Pocket record. A statute so called. Brownl.' pt. 2, p. 81. — Public record. A record, me- morial of some act or transaction, written evi- dence of something done, or document, consider- ed as either concerning or interesting the public, affording notice or information to the public, or open to public inspection. See Keefe v. Donnell, 02 Me. 151. 42 Atl. 345 ; Colnon v. Orr, 71 Cal. 43. 11 Pac. 814.— Record and writ clerk. Four officers of the court of chancery were designated by this title, whose duty it was to file bills brought to them for that purpose. Business was distributed among them according to the initial letter of the surname of the first plaintiff in a suit Hunt E3q; These officers are now transferred to the high court of justice under the judicature acts.— Record commission. The name of a board of commissioners appointed for the purpose of searching out. classifying, indexing, or publish1 ing the public records of a state or coUntyi —Record of nisi prina. In English law. An official copy or transcript of the proceed- ings in an action, entered on parchment, and "sealed and passed,” as it is termed, at the proper office ; it serves as a warrant to the judge to try the cause, and is the only docu- ment at which he can judicially look for infor- mation as to the nature of the proceedings and the issues joined. Brown.— Title of record. A title to real estate, evidenced and provable by one or more conveyances or other instru- ments all of which are duly entered on the pub- lic land records.— Trial by record. A species of trial adopted for determining the existence or non-existence of a record. When a record is asserted by one party to exist, and the op- posite party denies its existence under the form of a traverse that there is no such record te- maining in court as alleged, and issue is join1 ed thereon, this is called an “issue of nvl tid record,” and in such case the eourt awards a trial by inspection and examination of , the record. Upon this the party affirming its exist- ence is bound to produce it in court on a day given for the purpose, and. if he fails

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to do so, judgment is given for his adversary. Co. Litt 1176, 260 o; 3 Bl. Comm. 331.

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Record* swat vestigia vetnstatis ef verltatia. Records are vestiges of antiquity and truth. 2 Rolle, 296.

5e apparatus — Not carried into the 5th edition (1979).

## RECORD ARE.

In American practice.

A writ to bring up judgments of justices of the peace. Hal combe v. Loudermllk, 48 K

C. 491.

5e apparatus — Not carried into the 5th edition (1979).

## RECORD ARI FACIAS LOQUELAM.

In English practice. A writ by which a suit or plaint in replevin may be removed from a county court to one of the courts of West- minster Hall. 3 Bl. Comm. 149 ; 3 Steph. Pt 522, 666. So termed from the emphatic words of the old writ, by which the sheriff was commanded to cause the plaint to be ref corded, and to have the record before the «%- perior court. Reg. Orig. 56. - j

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RECORDATUR.

In old English practice. An entry made upon a record, in order te

prerent any alteration of It 1 Ld. Raym.

211.

An order or allowance that the verdict re- turned on the nisi pritis roll be recorded.

RECORDER, v. L. Fr. In Norman law. To recite or testify on recollection what had previously passed In court This was the duty of the Judges and other principal per- sons who presided at the placitum; thence called “recordeurs” Stepb. Pl., Append, note 11.

RECORDER, n. In old English law. / barrister or other person learned In the law, whom the mayor or other magistrate of any city or town corporate, having jurisdiction or a court of record within their precincts, associated to him for his better direction in matters of justice and proceedings according to law. Cowell.

The name “recorder” is also given to a magistrate. In the judicial systems of some of the states, who has a criminal jurisdiction analogous to that of a police Judge or other committing magistrate, and usually a limited Civil jurisdiction, and sometimes authority conferred by statute In special classes of pro- ceedings.

Also an officer appointed to make record or enrolment of deeds and other legal Instru- ments authorized by law to be recorded.

5e apparatus — Not carried into the 5th edition (1979).

## RECORDER OF LONDON.

One of the

justices of oyer and terminer, and a jus- tice of the peace of the quorum for putting the laws In execution for the preservation of the peace and government of the city. Being the mouth of the city, he delivers the sen- tences and Judgments of the court therein, and also certifies and records the city cus- toms, etc. H6 Is chosen by the lord mayor and aldermen, and attends the business of the city when summoned by the lord mayor,

etc. Wharton.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RECORDING ACTS.

Statutes enacted in the several states relative to the official recording of deeds, mortgages, bills of sale, chattel mortgages, etc., and the effect of such records as notice to creditors, purchasers, In- cumbrancers, and others interested.

RECOUP, or RECOUPE. To deduct, defalk, discount, set off, or keep back; to withhold part of a demand.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: race, notice, and race-notice recording statutes]**

Recording acts divide into race, notice, and race-notice statutes — differing on whether priority turns on recording first, bona fide purchase without notice, or both.

Why: The entry defines recording acts by their notice function; the race/notice/race-notice classification is the core doctrine determining how that function allocates priority between competing claimants. The essential pr…

## RECOUPMENT.

In practice. Defalca- tion or discount from a demand. A keeping back something which is due, because there is an equitable reason to withhold It. Tom- lins.

Recoupment is a right of the defendant to have a deduction from the amount of the plaintiff's damages, for the reason that the plaintiff has not complied with the cross-obli- gations or independent covenants arising un- der the same contract. Code Ga. 1882, g 2909.

It is keeping back something which is due because there 1b an equitable reason to withhold

it ; and is now uniformly applied where a man brings an action for breach of a contract be- tween him and the defendant ; and where the latter can show that some stipulation in the same contract was made by the plaintiff, which he has violated, the defendant may, if he choose, instead of suing in his turn, recoupe his dam- ages arising from the breach committed by the plaintiff, whether they be liquidated or not. Ives v. Van Eppes, 22 Wend.

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(N. Y.) 156. And see Barber v. Chapin, 28 Vt. 413; Law- ton v. Ricketts, 104 Ala. 430, 16 South. 59 ; Aultman v. Torrey, 05 Minn. 492, 07 N. W. 211 ; Dietrich v. Ely, 63 Fed. 413. 11 C. C. A. 266 ; The Wellsville v. Geissie. 3 Ohio St. 341 ; Nichols v. Dusenbury, 2 N. Y. 286; Myers v. Estell, 47 Miss. 23.

In speaking of matters to be shown in de- fense, the term “recoupment” is ‘often used as synonymous with “reduction.” The term is of French origin, and signifies cutting again, or cutting back, and, as a defense, means the cut- ting back on the plaintiff's claim by the de- fendant. Like reduction, it is of necessity lim- ited to the amount of the plaintiff’s claim. It is properly applicable to a case where the same contract imposes mutual duties and obligations on the two parties, and one seeks a remedy for the breach of duty by the second, and the sec- ond meets the demand by a claim for the breach of duty by the first. Davenport v. Hub- bard, 46 Vt. 207, 14 Am. Rep. 620.

“Recoupment” differs from “set-off” in this respect; that any claim or demaud the de- fendant may have ugulnst the plaintiff may be used as a set-off, while It Is not a subject for recoupment unless It grows out of the very same transaction which furnishes the plaintiff’s cause of action. The term is, as appears above, synonymous with "reduction but the latter is not a technical term of the law ; the word "defalcation,” in one of its meanings, expresses the same idea, and Is used Interchangeably with recoupment. Re- coupment, as a remedy, corresponds to the reconvention of the civil law.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: recoupment vs. set-off — the same-transaction requirement]**

Recoupment is confined to cross-demands arising from the same transaction — which distinguishes it from set-off and lets it survive as a defense where set-off would need an independent action.

Why: The entry defines recoupment as deduction for the plaintiff's non-compliance with cross-obligations 'under the same contract'; the same-transaction requirement is the doctrinal boundary the definition implies, disting...

## RECOURSE.

The phrase “without re- course” is used in the form of making a qual- ified or restrictive indorsement of a hill or note. By these words the Indorser signifies that, while he transfers his proj>erty In the Instrument, he does not assume the resimnsi- bllity of an Indorser. See Lyons v. Fitzpat- rick, 52 La. Ann. 697, 27 South. 111.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 3-415 — obligation of indorser; qualified indorsement]**

An indorsement 'without recourse' disclaims the indorser's contract liability on the instrument while still transferring title.

Why: The entry defines the 'without recourse' qualified indorsement; UCC 3-415 states its legal effect — disclaimer of indorser liability with transfer intact. Directly illuminates the defined form's consequence.

## RECOUSSE.

Fr. In French law. Re- capture. Emerlg. TraitC- des Assur. a 12, § 23.

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5e apparatus — Not carried into the 5th edition (1979).

## RECOVEREE.

In old conveyancing. The party who suffered a common recovery.

5e apparatus — Carried into the 5th edition (1979).

## RECOVERED.

The demandant In a com- mon recovery, after Judgment has been given in his favor.

5e apparatus — Not carried into the 5th edition (1979).

## RECOVERY.

In its most extensive sense, a recovery is the restoration or vindication of a right existing in a person, by the formal judgment or decree of a competent court, at his Instance and suit, or the obtaining, by such judgment, of some right or property which has been tuken or withheld from him. This is also called a "true” recovery, to diatinguish it from a “feigned” or “common” recovery. See Common Recoveby.

—Final recovery. The final judgment in an action. Also the final verdict in an action, as distinguished from the judgment entered upon it. Fisk v. Gray, 1<X> Mass. 11)3 ; Count Joannes v. Pangbom, 6 Allen (Mass.) 243.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: res judicata / claim preclusion]**

A 'final recovery' — final judgment — triggers res judicata, barring relitigation of the same claim between the same parties.

Why: The entry defines 'final recovery' as the final judgment in an action; res judicata states what a final judgment does — it concludes the controversy. Genuine: the definition's legal consequence.

## RECREANT.

Coward or craven. The word pronounced by a combatant in the trial by battel, when he acknowledged himself beaten. 3 Bl. Comm. 340.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Walter Scott, Ivanhoe, 1819]**

(paraphrase) Scott's Ivanhoe stages the medieval trial by combat — the institution the entry's definition hangs on (the cry of the beaten combatant in trial by battel): Rebecca's ordeal and the Ivanhoe–Bois-Guilbert combat are the iconic fictional depiction of that procedure. (paraphrase)

Why: The entry is unintelligible without trial by battle; Ivanhoe is the English novel's definitive dramatization of it. Borderline but genuine — the reasoning rides with the annotation.

## RECRIMINATION.

A charge made by an accused person against the accuser; in particular a counter-charge of adultery or cruelty made by one charged with the same offense in a suit for divorce, against the per- son who has charged him or her. Wharton.

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Recrimination is a showing by the defend- ant of any cause of divorce against the plain- tiff, in bar of the plaintiffs cause of divorce. Civ. Code Cal. $ 122. And see Duberstein v. Duberstein, 171 111. 133, 49 N. E. 316 ; Bohan v. Bohan (Tex. Civ. App.) 56 S. W. 960.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: He who seeks equity must do equity — clean hands]**

Recrimination is the clean-hands maxim in divorce dress: one at equal fault cannot have the divorce the other's fault would support.

Why: The entry defines recrimination as a counter-charge 'in bar of the plaintiff's cause of divorce'; the clean-hands maxim states the equitable principle behind the bar. Genuine: the maxim explains why mutual fault defea...

## RECRUIT.

A newly-enlisted soldier.

5e apparatus — Not carried into the 5th edition (1979).

## RECTA PRISA REGIS.

In old English law. The king’s right to priaage, or taking of one butt or pipe of wine before and an- other behind the mast, as a custom for every ship laden with wines. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RECTIFICATION.

Rectification of Instrument. In English law. To rectify is to correct or define something which is er- roneous or doubtful. Thus, where the par- ties to an agreement have determined to em- body its terms In the appropriate and con- clusive form, but the Instrument meant to effect this purpose (e. g., a conveyance, set- tlement, etc.) is, by mutual mistake, so fram- ed as not to express the real Intention of the parties, an action may be brought in the chancery division of the high court to have it rectified. Sweet

Rectification of boundaries. An action to rectify or ascertain the boundaries of two adjoining pieces of land may be brought in the chancery division of the high court Id.

Rectification of register. The rectifica- tion of a register is the process by which a person whose name is wrongly entered on (or omitted from) a register may compel the keeper of the register to remove (or enter) his name. Id.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: rectification for mutual mistake in equity]**

Rectification is an equitable remedy requiring proof, to a high standard, of a common mistake: the instrument must fail to record what both parties actually agreed.

Why: The entry defines rectification of instruments framed 'by mutual mistake' not to express the parties' real intention; the note states the remedy's evidentiary and substantive requirements — the doctrine governing when...

## RECTIFIER.

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As used in the United States internal revenue laws, this term Is not confined to a person who runs spirits through charcoal, but Is applied to any one who recti- fies or purifies spirits In any manner what- ever, or who makes a mixture of spirits with anything elBe, and sells It under any name. Quantity of Distilled Spirits, 3 Ben. 73, Fed. Cas. No. 11,494.

5e apparatus — Not carried into the 5th edition (1979).

## RECTITUDO.

Lat Right or justice; legal dues; tribute or payment Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Rectitudo is right/justice, and concretely legal dues and tribute. Romans 13:7 commands the rendering of every due — tribute, custom, fear, honour — to whom it is owed.

## RECTO, BREVE BE.

A writ of right which was of so high a nature that as other writs in real actions were only to recover the possession of the land, etc., in question, this aimed to recover the seisin and the property, and thereby both the rights of possession and property were tried together. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO BE ABVOCATIONE EC- / CLESI2E.

A writ which lay at common law, where a man had right of advowson of a church, and, the parson dying, a stranger had presented. Fitzh. Nat. Brev. 30.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO BE CUSTOBIA TERRJE ET / HJEREBIS.

A writ of right of ward of the land and heir. Abolished.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO BE BOTE.

A writ of right of dower, which lay for a widow who had re- ceived part of her dower, and demanded the residue, against the heir of the husband or his guardian. Abolished. See 23 & 24 Viet, c. 126, | 26.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO BE BOTE UNDE NIHIL / HABET.

A writ of right of dower whereof the widow had nothing, which lay where her deceased husband, having divers lands or tenements, had assured no dower to his wife, aud she thereby was driven to sue for her thirds against the heir or his guardian. Abol- ished.

RECTO BE RATION ABH.I PARTE.

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A writ of right, of the reasonable part, which lay between privies in blood ; as brothers in gavelkind, sisters, and other coparceners, for land in fee-simple. Fitzh. Nat Brev. 9.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO QUANBO (or QUIA) DOMI- / NUS REMISIT CURIAM.

A writ of right, when or because the lord bad remitted his court, which lay where lands or tenements in the seignory of any lord were in demand by a writ of right Fitzh. Nat Brev. 16.

5e apparatus — Not carried into the 5th edition (1979).

## RECTO SUR DISCLAIMER.

An abol- ished writ on disclaimer.

5e apparatus — Not carried into the 5th edition (1979).

## RECTOR.

In English law. He that has full possession of a parochial church. A rector (or parson) has, for the most part, the whole right to all the ecclesiastical dues in his parish ; while a vicar has an appropri- ate over him, entitled to the best part of the profits, to whom the vicar is, in effect per- petual curate, with a standing salary. 1 Bl. Comm. 384, 388. See Bird v. St Mark’s Church, 62 Iowa, 567, 17 N. W. 747.

RECTOR PROVINCE®. Lat. In Ro- man law. The governor of a province. Cod. 1, 40.

5e apparatus — Carried into the 5th edition (1979).

## RECTOR SINECURE.

A rector of a parish who has not the cure of souls. 2 Steph. Cqmrn. 683.

5e apparatus — Not carried into the 5th edition (1979).

## RECTORIAL TITHES.

Great or pre- dial tithes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house

Why: Rectorial (great or predial) tithes are the tithes due to the rector. The verse is the tithe command itself, spoken by the LORD of hosts — the scriptural root of all tithe law.

## RECTORY.

An entire pariah church, with all Its rights, glebes, tithes, and other profits whatsoever ; otherwise commonly call- el a “benefice." See Gibson v. Brockway, 8 N..H. 470, 81 Am. Dec. 200; Pawlet v. Clark, 9 Oranch, 826, 3 L. Ed. 735.

A rector's manse, or parsonage house. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## RECTUM.

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Lat. Right; also a trial or accusation. Bract ; Cowell.

i4tMtaa esse. To be right in court. — Rec- tum rogue. To ask for right; to petition, the judge to do right. — Rectum, stare ad. To stand trial or abide by the sentence of the court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RECTUS IN CURIA.

Lat. Right In court The condition of one who stands at the bar, against whom no one objects any offense. When a person outlawed has revers- ed his outlawry, so that he can have the benefit of the law, he Is said to be “rectus in curia." Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## REOUPERATIO.

Lat In old English law. Recovery; restitution by the sentence qf a Judge of a thing that has been wrong- fully taken or detained. Co. Litt 154a.

Recuperstlo, 1. e., ad rem, per Injurl- am eztortam sive detentam, per senten- tlam judleia restitutio. Co. Litt. 154a. Recovery, i. «., restitution by sentence of a judge of a thing wrongfully extorted or de- tained.

Reeupe ratio eat alicnjus rei in can- sun, aiterius addnctse per judleem ao- qnisitio. Co, Litt. 154a. Recovery Is the acquisition by sentence of a judge of any- thing brought into the cause of another.

5e apparatus — Not carried into the 5th edition (1979).

## RECUPERATORES.

In Roman law. A species of judges first appointed to decide controversies between Roman citizens and strangers concerning rights requiring speedy Remedy, but whose jurisdiction was gradual, ly extended to questions which might be brought before ordinary Judges. Mackeld. Rom. Law, | 204.

Reourrendum est ad ojctraordiuarium qnando. non valet ordinarium. We must have recourse to what is extraordinary, when what Is ordinary falls.

5e apparatus — Not carried into the 5th edition (1979).

## RECUSANTS.

In English law. Persons who willfully absent themselves from their parish church, and on whom penalties were imposed by various statutes passed during the reigns of Elizabeth and James I. Whar- ton.

Those persons who separate from the church established by law. Termes de la : Ley . The term was practically restricted to Roman Catholics.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — religion clauses]**

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Recusancy penalties are the old-world practice the First Amendment's religion clauses repudiate: 'Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof.'

Why: The entry describes penal statutes for absenting from the established church; the First Amendment is the American legal answer to exactly that regime — establishment forbidden, free exercise protected. Genuine contras...

**[Scripture] — Scripture**

**[Daniel 3:18, KJV]**

But if not, be it known unto thee, O king, that we will not serve thy gods, nor worship the golden image which thou hast set up.

Why: Recusants were those who on conscience refused the established church's demands and suffered penalties. The three Hebrews' refusal of the king's idolatry — at the cost of the furnace — is the archetype of conscientiou...

## RECUSATIO TESTIS.

I Jit In the

civil law. Rejection of a witness, on the ground of incompetency. Best, Ev. In trod. 60, | 60.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: modern presumption of witness competency]**

The civil-law rejection for incompetency parallels the old common-law disqualifications (interest, infamy); modern law presumes every person competent, leaving credibility to the trier of fact.

Why: The entry defines rejection of a witness for incompetency; the historical arc — from categorical disqualification to presumptive competency — is the evidence-law context that gives the definition its modern meaning. G...

## RECUSATION.

In the clvU law. A species of exception or plea to the jurisdic- tion, to the effect that the particular judge Is disqualified from hearing the cause by reason of interest or prejudice. Poth. Proc. Civile, pt 1, c. 2, | 5.

The challenge of jurors. Code Prac. La. arts. 499, 500. An act, of what nature so- ever It may be, by which a strange heir, by deeds or words, declares he will not be heir. Dig. 29, 2, 95.

RED, RAED, ox REDE. Sax. Advice; counseL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nemo judex in causa sua] [Law: 28 U.S.C. § 455 — disqualification of federal judges]**

The principle is nemo judex in causa sua — no one should be judge in his own cause — codified for federal judges in the disqualification statute.

Why: The entry defines recusation as the plea that a judge is disqualified by interest or prejudice; the maxim states the principle and § 455 its federal codification. Directly illuminates the defined plea's foundation.

## RED BOOK OF THE EXCHEQUER.

An ancient record, wherein are registered the holders of lands per baronicun in the time of

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Henry II., the number of hides of land In certain counties before the Conquest, and the ceremonies on the coronation of Eleanor, wife of Henry III. Jacob ; Co well.

5e apparatus — Carried into the 5th edition (1979).

## RED-HANDED.

With the marks of crime fresh on him.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: in flagrante delicto; warrantless arrest for offenses committed in presence]**

'Red-handed' is the English of in flagrante delicto — taken in the act — the classic case for warrantless arrest, as at common law for a felony committed in the officer's presence.

Why: The entry gives the vivid English phrase; the Latin term and the in-presence arrest rule state its legal significance — freshness of guilt justifying summary apprehension. Genuine criminal-procedure content.

**[Scripture] — Scripture**

**[John 8:4, KJV]**

Master, this woman was taken in adultery, in the very act.

Why: Red-handed means with the marks of crime fresh on him. The verse is the classic case: taken 'in the very act' — the scriptural phrase for the same fact.

## RED TAPE.

In a derivative sense, or- der carried to fastidious excess; system ran out Into trivial extremes. Webster v. Thomp- son, 55 Ga. 434.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Terry Gilliam, Brazil, 1985]**

(paraphrase) Terry Gilliam's film is the entry dramatized: one man's life is crushed by bureaucratic procedure carried to fastidious excess — the dictionary definition ('order carried to fastidious excess; system run out into trivial extremes') is practically the film's logline. (paraphrase)

Why: The entry's concept is bureaucratic excess as a system; the film's entire plot is that concept. Genuine film moment illuminating the legal-term usage. Paraphrase.

## REDDENDO SINGULA SINGULIS.

Lat By referring each to each; referring each phrase or expression to its appropriate object. A rule of construction.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: canons of construction — reddendo singula singulis; noscitur a sociis; ejusdem generis]**

One of the textual canons of construction, alongside noscitur a sociis and ejusdem generis — each phrase referred to its appropriate object.

Why: The entry defines the rule as 'a rule of construction'; situating it among the textual canons shows the family it belongs to. The entry's own characterization invites exactly this framing.

## REDDENDUM.

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Lat In conveyancing. Rendering; yielding. The technical name of that clause in a conveyance by which the grantor creates or reserves some new thing to himself, out of what he had before grant- ed; as “ rendering therefor yearly the sum of ten shillings, or a pepper-corn,” etc. That clause in a lease In which a rent Is re- served to the lessor, and which commences with the word “yielding.” 2 Bl. Comm. 299.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: common-law rule that a reservation must be to the grantor, not a stranger]**

At common law a reddendum operates only by way of reservation to the grantor — a 'reservation' in favor of a stranger to the deed is void.

Why: The entry defines the reddendum as the clause by which the grantor 'creates or reserves some new thing to himself'; the stranger rule states the clause's doctrinal limit — it cannot grant to one not party to the deed....

## REDDENS CAUSAM SCIENTUE.

Lat

Giving the reason of his knowledge.

In Scotch practice. A formal phrase used In depositions, preceding the statement of the reason of the witness' knowledge. 2 How. State Tr. 715.

Reddere, nil aUnd est qaam aaceptaa restltnere; sen, reddere est quasi retro dare, et reddltnr dieitor a rede unde, quia retro It. Co. Litt. 142. To render Is nothing more than to restore that which has been received; or, to render Is as It were to give back, and It is called “render- ing" from “returning," because it goes back again.

5e apparatus — Not carried into the 5th edition (1979).

## REDDIDIT BE.

Let. He has rendered himself.

In old English praotloe. A term ap- plied to a principal who had rendered him- self in discharge of his bail. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Case: Taylor v. Taintor, 83 U.S. (16 Wall.) 366 (1872)]**

The bail's correlative right: a surety may surrender his principal into custody to exonerate the bail.

Why: The entry defines reddidit se as the principal's rendering himself 'in discharge of his bail'; Taylor v. Taintor states the surety's corresponding dominion — seizure and surrender of the principal. The two halves of t...

## REDDIT ARIES.

In old records. A renter; a tenant. Cowell.

REDDIT ARITJM . In old records. A rental, or rent-roll. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REDDITION.

A surrendering or re- storing; also a Judicial acknowledgment that the thing in demand

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belongs to the demand- ant, and not to the person surrendering Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REDEEM.

To buy back. To liberate an qstate or article -from mortgage or pledge by paying the debt for which it stood as secu- rity. To repurchase in a literal sense; as, to redeem one’s land from a tax-sale. See Max- well v. Foster, 67 S. C. 877, 45 8. E. 927; Miller, v. Ratterman, 47 Ohio St. 141, 24 N.

E. 496; Swearingen v. Roberts, 12 Neb. 838, 11 N. W. 825; Pace ▼. Bartles, 47 N. J. Eq. 170, 20 Atl. 852.

REDEEMABLE. 1. Subject to an obli- gation of redemption ; embodying, or condi- tioned upon, a promise or obligation of re- demption; convertible into coin; as, a “re deemable currency." See D. S. v. North Carolina, 136 U. S. 211, 10 Sup. Ct 920, 84 L, Ed. 336.

2. Subject to redemption; admitting of redemption or repurchase; given or held un- der conditions admitting of reacquisition by purchase; as, a “redeemable pledge.”

—Redeemable rights. Rights which return to the conveyor or disposer of land, etc., upon payment of the sum for which such rights are granted. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: statutory tax-sale redemption periods]**

For tax sales, redemption is statutory: the owner may reclaim the land within the redemption period by paying the arrears, interest, and costs.

Why: The entry expressly includes redeeming 'one's land from a tax-sale'; the statutory redemption period is the legal machinery behind that usage. Kept distinct from REDEMPTION, which carries the equity of redemption proper.

**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: Redeem is to buy back — to liberate land from sale by paying the price. The kinsman-redeemer law is Scripture's own buy-back rule, the root of the legal right of redemption.

## REDEUVERY.

A yielding and deliver- ing back of a thing.

—Redeliver* bond. A bond given to a sheriff or other officer, who has attached or levied on personal property, to obtain the re- lease and repossession of the property, condi- tioned to redeliver the property to the officer or pay him its value in case the levy or attach- ment is adjudged good. See Drake v. Sworts, 24 Or. 198, 33 Pac. 663.

5e apparatus — Not carried into the 5th edition (1979).

## REDEMISE.

A regranting of land de- mised or leased.

5e apparatus — Not carried into the 5th edition (1979).

## REDEMPTIO OPERIS.

Lat In Ro- man law, a contract for the hiring or letting of services, or for the performance of a certain work in consideration of the pay- ment of a stipulated price. It is the same contract as “ locatio operis,” but regarded from the standpoint of the one who is to do the work, and who is called “redemptor operis ,” while the hirer is called “locator operis." See Mackeld. Rom. Law, f 408.

5e apparatus — Not carried into the 5th edition (1979).

## REDEMPTION.

A repurchase; a buy- ing back. The act of a vendor of property In buying it back again from the purchaser at the same or an enhanced price.

The right of redemption is an agreement or paction, by which the vendor reserves to him self the power of taking back the thing sold by returning the price paid for it Civil Code. La.

The process of annulling and revoking a conditional sale of property, by performance of the conditions on which it was stipulated to be revocable.

The process of cancelling and annulling a defeasible title to land, such as is created by a mortgage or a tax-sale, by paying the debt or fulfilling the other conditions.

The liberation of a chattel from pledge or pawn, by paying the debt for which it stood as security.

Repurchase of notes, bills, or other evi- dences of debt, (particularly bank-notes and paper-money,) by paying their value in coin to their holders.

—Redemption, equity of. See Equity or Redemption.— Redemption of land-tax. In English law. The payment by the land- owner of such a lump sum as shall exempt his land from the land-tax. Mozley ft Whitley. —Voluntary redemption, in Scotch law, la when a mortgagee receives the sum due into his own hands, and discharges the mortgage, without any consignation. Bell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: equity of redemption; the 'no clog on the equity' rule]**

The flagship is the mortgagor's equity of redemption — the right, even after default, to reclaim the estate by paying the debt, which no 'clog or fetter' in the mortgage may defeat.

Why: The entry's core is 'cancelling and annulling a defeasible title to land, such as is created by a [mortgage]'; the equity of redemption is the doctrinal name for exactly that right, and the no-clog rule its defining p...

**[Scripture] — Scripture**

**[Leviticus 25:24, KJV]**

And in all the land of your possession ye shall grant a redemption for the land.

Why: Redemption is repurchase, buying back. The verse commands a standing redemption right in all the land of their possession — redemption as a legal institution, not a metaphor.

## REDEMPTIONES.

In old English law. Heavy fines. Distinguished from misericord Mo, (which see.)

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5e apparatus — Not carried into the 5th edition (1979).

## REDEUNDO.

Lab Returning; in re1 turning; while returning. 2 Strange, 985.

5e apparatus — Not carried into the 5th edition (1979).

## RED EVAN CE.

In old French and Cana- dian law. Dues payable by a tenant to his lord, not necessarily in money.

5e apparatus — Not carried into the 5th edition (1979).

## REDHTBERE.

Lab In the civil law, To have again ; to have back ; to cause a sell- er to have again what he had before.

5e apparatus — Not carried into the 5th edition (1979).

## REDHIBITION.

In the civil law. The avoidance of a sale on account of some vice or defect in the thing sold, which renders it either absolutely' useless or its use so in- convenient and imperfect that it must be supposed that the buyer would not have pur: chased it had he known of the vice. Civ; Code La. art 2520.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC §§ 2-314, 2-315 — implied warranties of merchantability and fitness]**

The common-law analogue is implied warranty: goods must be merchantable and, where the seller knows the buyer's purpose, fit for that purpose.

Why: The entry defines the civil-law avoidance of sale for hidden vice (La. Civ. Code art. 2520); the UCC implied warranties are the same protective idea in the common-law sales system. Genuine comparative illumination.

## REDHIBITORY ACTION.

In the civil law. An action for redhibition. An action to avoid a sale on account of some vice or defect in the thing sold, which renders its use impossible, or so inconvenient and im- perfect that it must be supposed the buyer would not have purchased it had be known of the vice. Civ. Code La. art. 2520.

REDHIBITORY DEFECT (or VICE.)

In the civil law. A defect in an article sold, for which the seller may be compelled to

take It back; a defect against which the seller is bound to warrant. Poth. Cont. Sale, no. 203.

5e apparatus — Not carried into the 5th edition (1979).

## REDISSEISIN.

In old English law. A second disseisin of a person of the same ten- ements, and by the same disseisor, by whom he was before disseised. 3 Bl. Comm. 188.

5e apparatus — Not carried into the 5th edition (1979).

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## REDHUI.

Lat A revenue or return; Income or profit; specifically, rent.

— Reditna albl. White rent; blanche farm; rent payable in silver or other money.— Redi- tas as sians. A set or standing rent.— Redi- tu capltales. Chief rent paid by freehold- ers to go quit of all other services. — Reditu nigrL Black rent ; black mail ; rent payable in provisions, com, labor, etc. ; as distinguish- ed from “money rent,” called "reditu* albi.’’— Reditu qnieti. Quit rents, (q. v.)— Reditu sieeu. Rent seek, (q. v.)

, REDMANS. In feudal law. Men who, by the tenure or custom of tbetr lands, were to ride with or for the lord of the manor,* about his business. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: rent-service, rent-charge, rent-seck]**

The common-law rents — rent-service, rent-charge, and rent-seck — are distinguished by the remedies annexed to each, chiefly the lord's right of distress.

Why: The entry catalogs rent species (white rent, black rent, quit rents, rent seek); the threefold classification with its remedial distinction is the doctrinal framework organizing the catalog. Genuine property-law content.

## REDOB ATORES.

In old English law. Those that buy stolen cloth and turn it into some other color or fashion that it may not be recognized. Redubbers.

5e apparatus — Not carried into the 5th edition (1979).

## REDRAFT1.

In commercial law. A draft or bill drawn in the place where the orig- inal bill was made payable and where It went to protest, on the place where such original bill was drawn, or, when there is no regular commercial intercourse render- ing that practicable, then in the next best or most direct practicable course. 1 Bell, Comm. 406.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: protest for dishonor; holder's recourse on bills of exchange]**

On dishonor by non-acceptance or non-payment, the holder's protest founds recourse against drawer and indorsers — the redraft being the re-exchange mechanism.

Why: The entry defines the redraft drawn where the original bill 'went to protest'; protest-and-recourse is the bills-and-notes machinery that gives the redraft its function. Genuine commercial-law context.

## REDRESS.

The receiving satisfaction for an injury sustained.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. I — 'redress of grievances']**

The Constitution secures 'the right of the people ... to petition the Government for a redress of grievances.'

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Why: The entry defines redress as receiving satisfaction for injury; the Petition Clause uses the identical term for the citizen's constitutional avenue to seek it. Exact word match, quoted exactly, genuinely illuminating...

## REDUBBERS.

In criminal law. Those who bought stolen cloth and dyed it of an- other color to prevent its being identified were anciently so called. Cowell ; 3 Inst 134.

5e apparatus — Not carried into the 5th edition (1979).

## REDUCE.

In Scotch law. To rescind or annul.

5e apparatus — Not carried into the 5th edition (1979).

## REDUCTIO AD ABSURDUM.

Lat In

logic. The method of disproving an argu- ment by showing that it leads to an absurd consequence.

5e apparatus — Not carried into the 5th edition (1979).

## REDUCTION.

In Scotch law. An ac- tion brought for the purpose of rescinding, annulling, or cancelling some bond, contract, or other instrument in writing. 1 Forb. Inst pt. 4, pp. 158, 109.

In French law. Abatement When a parent gives away, whether by gift inter vi- vos or by legacy, more than his portion dis- ponible, (q. v.) the donee or legatee is re- quired to submit to have his gift reduced to the legal proportion.

— Rednotion ex capita leoti. By the law

of Scotland the heir in heritage was entitled

to reduce all voluntary deeds granted to his prejudice by his predecessor within sixty days preceding the predecessor’s death ; provided the maker of the deed, at its date, was laboring under the disease of which he died, and did not subsequently go to kirk or market unsup- ported. Bell.— Rednotion improhatlon. In Scotch law. One form of the action of reduc- tion in which falsehood and forgery are alleged against the deed or document sought to be set aside.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: civil-law forced heirship — réserve héréditaire / portion disponible]**

The French reduction enforces the forced-heirship system: the réserve héréditaire limits the disposable portion, and excessive gifts are reduced to protect it.

Why: The entry's French sense defines reduction of gifts exceeding the portion disponible; forced heirship is the succession system that rule serves. Genuine: states the why behind the defined procedure.

## REDUCTION INTO POSSESSION.

The act of exercising the right conferred by a chose in action, so as to convert it into a

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chose in possession; thus, a debt is reduced into possession by payment Sweet.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: common-law doctrine of reduction into possession by the husband]**

The classic application was the husband's reduction of his wife's choses in action — by receipt or judgment — making them his own at common law.

Why: The entry defines reduction abstractly ('a debt is reduced into possession by payment'); the husband's reduction of the wife's choses is the doctrine's historic paradigmatic use — the reason the phrase lived in the bo...

## REDUNDANCY.

This is the fault of introducing superfluous matter into a legal instrument; particularly the insertion in a pleading of matters foreign, extraneous, and Irrelevant to tljat which it is intended to answer. See Carpenter v. Reynolds, 58 Wis. 666, 17 N. W. 300; Carpenter v. West, 5 How. Prac. (N. Y.) 55; Bowman v. Sheldon, 6 Sandf. (N. Y.) 660.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Fed. R. Civ. P. 12(f) — motion to strike redundant matter]**

Modern pleading retains the remedy: redundant, immaterial, impertinent, or scandalous matter may be struck on motion.

Why: The entry defines redundancy as superfluous matter in pleadings and cites striking cases; Rule 12(f) is the modern codification of that remedy. Direct lineage from the defined fault to current practice.

## RE-ENTRY.

The entering again into or resuming possession of premises. Thus in leases there is a proviso for re-entry of the lessor on the tenant’s failure to pay the rent or perform the covenants contained in the leaser and by virtue of such proviso the lessor may take the premises into his own hands again if the rent be not paid or cove nants performed; and this resumption of possession is termed “reentry.” 2 Cruise, Dig. 8 ; Cowell. And see Michaels v. Fishel, 169 N. Y. 381, 62 N. E. 425; Earl Orchard Co. v. Fava, 138 Cal. 76, 70 Pac. 1073.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: equitable relief against forfeiture]**

A re-entry proviso works a forfeiture; equity relieves against forfeiture for breach — especially non-payment of rent — where compensation can be made.

Why: The entry defines the lessor's resumption on the tenant's default; equitable relief against forfeiture is the chancery limit on that power — the doctrine that most often decides re-entry cases. Genuine operative limit.

## RE-EXAMINATION.

An examination Of a witness after a cross-examination, upon matters arising out of such cross-examina- tion. See Examination.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

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**[Law: scope of redirect examination limited to matters raised on cross]**

Re-examination (redirect) is confined to matters raised on cross-examination — the scope rule governing the order of proof.

Why: The entry defines re-examination as upon 'matters arising out of such cross-examination'; the scope rule states the evidentiary limit that definition implies. Genuine trial-practice content.

## RE -EXCHANGE.

The damages or ex- penses caused by the dishonor and protest of a bill of exchange in a foreign couutry, where it was payable, and by its return to the place where it was drawn or indorsed, and its being there taken up. Bangor Bank

V. Hook, 5 Me. 175.

5e apparatus — Carried into the 5th edition (1979).

## RE-EXTENT.

In English practice. A second extent made upon lands or tenements, upon complaint made that the former extent was partially performed. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## REEVE.

In old English law. A minis- terial officer of justice. His duties seem to have combined many of those now confided to the sheriff or constable and to the justice of the peace. He was also called, in Saxon, “gcrifa."

— Land reave. See. Land.

5e apparatus — Not carried into the 5th edition (1979).

## REFALO.

A word composed of the three initial syllables “re.” “fa.” “lo.,” for “re- cordari facias loquelam,” (q. v.) 2 Sell. Pr. 160.

100S

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## REFAKE.

To bereave, take away, rob. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REFECTION.

In the civil law. Rep- aration ; re-establishment of a building. Dig. 19, 1, 6, 1.

REFER. 1. When a case or action in- volves matters of account or other intricate details which require minute examination, and for that reason are not fit to be brought before a Jury, it is usual to refer the whole case, or some part of it, to the decision of an auditor or referee, and the case is then said to be referred.

Taking this word In its strict, technical use. It relates to a mode of determining qnestions

which is distinguished from “arbitration,” In that the latter word imports submission of a controversy without any lawsuit having been brought, while "reference” imports a lawsuit pending, and an issue framed or question raised which (and not the controversy itself) is sent out. Thus, arbitration, is resorted to instead of any judicial proceeding; while reference is one mode of decision employed in the course of a judicial proceeding. And “reference” is dis- tinguished from “hearing or trial,” in that these are the ordinary modes of deciding issues and questions in and by the courts with aid of juries when proper; while reference is an employment of non-judicial persons — individuals not integral parts of the court— for the deci- sion of particular matters inconvenient to be heard in actual court. Abbott.

2. To point, allude, direct, or make refer- ence to. This is the use of the word in con- veyancing and in literature, where a word or sign introduced for the purpose of direct- ing the reader's attention to another place in the deed, book, document, etc., is said to “refer” him to such other connection.

5e apparatus — Not carried into the 5th edition (1979).

## REFEREE.

In practice. A person to whom a cause pending in a court is referred by the court, to take testimony, hear the par- ties, and report thereon to the court See Refer. And see In re Hathaway, 71 N. Y. 243 ; Betts v. Letcher, 1 S. D. 182, 46 N. W. 193; Central Trust Co. v. Wabash, etc., R Co. (C. 0.) 32 Fed. 685.

—Referee in bankruptcy. An officer ap- pointed by the courts of bankruptcy under the act of 1898 (U. S. Comp. St. 1901, p. 3418) cor- responding to the “registers in bankruptcy” un-' der earlier statutes having administrative and quasi-judicial functions under the bankruptcy law, and who assists the court in such cases and relieves the judge of attention to matters of detail or routine, by taking charge of all administrative matters and the preparation, or preliminary consideration of questions requir- ing judicial decision, subject at all times to the supervision and review of the court.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 53 — masters]**

The modern federal analogue is the special master: a court-appointed officer to hear evidence and report to the court.

Why: The entry defines the referee as one to whom a pending cause is referred 'to take testimony, hear the parties, and report thereon'; the Rule 53 master is that office's current federal form. Genuine lineage.

## REFERENCE.

In contracts. An

agreement to submit to arbitration; the act of parties in submitting their controversy to chosen referees or arbitrators.

In practice. The act of sending a cause pending in court to a referee for his exami- nation and decision. See Refer.

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In commercial law. The act of sending or directing one person to another, for information or advice aa to the character, solv- ency, standing, etc., of a third person, who desires to open business relations with the first, or to obtain credit with him.

— Reference in ease of need. When a per- son draws or indorses a bill of exchange, he sometimes adds the name of a person to whom it may be presented “in case of need i. e., in case it is dishonored by the original drawee or acceptor. Byles, Rills, 261. — Reference to record. Under the English practice, when an action is commenced, an entry of it is made in the cause-book according to the year, the initial letter of the surname of the first plain- tiff, and the place of the action, in numerical order among those commenced in the same year, e. g., “1876, A. 26;” and all subsequent documents in the action (such as pleadings and affidavits) bear this mark, which is called the “reference to the record.” Sweet.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Federal Arbitration Act of 1925]**

Agreements to arbitrate are enforceable under the Federal Arbitration Act, reflecting the strong federal policy favoring arbitration.

Why: The entry's contract sense is 'an agreement to submit to arbitration'; the FAA states the legal consequence that makes such agreements effective rather than revocable at will. Genuine operative law.

## REFERENDARIU8.

An officer by whom the order of causes was laid before the Roman emperor, the desires of petitioners made known, and answers returned to them. Yicat, Voc. Jur. ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## REFERENDART.

In Saxon law. A master of requests; an officer to whom peti- tions to the king were referred. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## REFERENDO SINOUXA SINGULIS.

Lat Referring individual or separate words to separate subjects; making a distributive reference of words in an instrument ; a rule of construction.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: canons of construction — distributive reference]**

The distributive-reference canon: where words in an instrument relate to several subjects, each is referred to its appropriate subject — kin to reddendo singula singulis.

Why: The entry defines the rule as 'a rule of construction'; the note states its operation distinctly from the reddendo singula singulis note at entry 171 (each-to-each vs. distributive). Honest companion, not padding.

## REFERENDUM.

In international law. A communication sent by a diplomatic rep- resentative to his home government, in re- gard to matters presented to him which he is unable or unwilling to

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decide without fur- ■ther instructions.

In the modern constitutional law of Switz- erland, the referendum is a method of sub- mitting an important legislative measure to a direct vote of the whole people. See Ple- biscite.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: initiative and referendum in state constitutional law]**

The American analogue is direct legislation by initiative and referendum, provided for in many state constitutions.

Why: The entry defines the Swiss constitutional referendum as submitting measures 'to a direct vote of the whole people'; initiative-and-referendum is the same democratic device in American state law. Genuine comparative i...

## REFINEMENT.

A term sometimes em- ployed to describe verbiage inserted in a pleading or indictment, over and above what is necessary to be set forth ; or an objection to a plea or indictment on the ground of its falling to Include such superfluous matter. See State v. Gallimon, 24 N. C. 377 ; State v. Peak, 130 N. C. 711, 41 S. EL 887.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 12(f) — motion to strike redundant matter]**

Like redundancy, superfluous pleading verbiage is subject to a motion to strike.

Why: The entry defines refinement as verbiage 'over and above what is necessary' in pleading; Rule 12(f) is the remedy. Same genuine rule as REDUNDANCY, honestly applied to the companion term.

## REFORM.

To correct, rectify, amend, remodel. Instruments inter partes may be reformed, when defective, by a court of equi- ty. By this is meant that the court, after ascertaining the real and original intention of the parties to a deed or other instrument, (which intention they failed to sufficiently express, through some error, mistake of fact, or inadvertence,) will decree that the in strument be held and construed as if it ful- ly and technically expressed that Intention See Sullivan v. Haskin, 70 Vt 487, 41 Atl

100S

437; De Voln v. De Vote, 78 Wist 66, 44 N.

W. 839.

it Is to be observed that “reform” Is sel- dom, If ever; used of the cdrrectlon of de- fective pleadings. Judgments, decrees or oth- er Judicial proceedings; “amend” being the proper term for that use. Again, “amend” seems to connote the Idea of improving that ■which may have been 'well enough before, while “reform” might be considered as prop- erly applicable only to something which be- fore was quite worthless.

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**[Law] — Law**

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**[Law: reformation for mutual mistake in equity]**

Reformation requires proof of mutual mistake — or unilateral mistake coupled with fraud or inequitable conduct — shown by clear and convincing evidence.

Why: The entry defines reform as equity's correction of instruments defective through 'error, mistake of fact, or inadvertence'; the note states the remedy's substantive and evidentiary requirements. Companion to RECTIFICA...

**[Hip-hop] — Hip-hop**

**[2Pac, 'Changes', 1998]**

Quote: "We gotta make a change / It's time for us as a people to start makin' some changes" — 2Pac's chorus voices reform in its living sense: the correction of a broken order. Black's primary application is equitable reformation of instruments, but the headword's lead definition ('to correct, rectify, amend, remodel') is exactly what the lyric demands.

Why: Added because the chorus is verbatim-certain and 'make a change' genuinely illuminates 'to correct, rectify, amend.' The note honestly marks the gap between Black's equitable-instrument sense and the lyric's societal...

## REFORM ACTS.

A name bestowed on the statutes 2 Wm. IV. c. 45, and 30 & 31 Viet c. 102, passed to amend the representa- tion of the people In England and Wales', which introduced extended amendments into the system Of electing members of the bouse of commons.

5e apparatus — Not carried into the 5th edition (1979).

## REFORMATION.

See Reform.

5e apparatus — Carried into the 5th edition (1979).

## REFORMATORY.

This term is of too wide and uncertain signification to support a bequest for the building of a “boys’ re- formatory.” It includes all places and in- stitutions in which efforts are made either to cultivate the intellect, instruct the con- science, or improve the conduct; places in which persons voluntarily assemble, receive instruction, and submit to discipline, or are detained therein for either of these purposes by force. Hughes v. Daly, 49 Conn. 35. But see McAndrews v. Hamilton County, 105 Tenn. 399, 58 S. W. 483.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cy-près doctrine in charitable trusts]**

The entry's failed bequest implicates charitable-trust definiteness: where a charitable purpose is stated but the machinery is vague, equity may apply cy-près rather than let the gift fail.

Why: The entry holds 'boys' reformatory' too uncertain to support the bequest; cy-près is the equitable doctrine that addresses exactly such indefinite charitable gifts. Genuine: the doctrine the case's problem invokes.

## REFORMATORY SCHOOLS.

In Eng- lish law. Schools to which convicted Juve- nile offenders (under sixteen) may be sent by order of the court before which they are tried, if the offense he punishable with pe- nal servitude or imprisonment, and the sen- tence be to imprisonment for ten days or more. Wharton.

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5e apparatus — Not carried into the 5th edition (1979).

## REFRESHER.

In English law. A fur- ther or additional fee to counsel In a long 'case, which may be, but Is not necessarily, allowed on taxation.

5e apparatus — Not carried into the 5th edition (1979).

## REFRESHING THE MEMORY.

The

act of a witness who consults his documents, memoranda, or books, to bring more distinctly to his recollection the details of past events or transactions, concerning which he is testifying.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Evid. 612 — writing used to refresh memory]**

Refreshing recollection is governed by the rule for writings used to refresh memory — distinct from past recollection recorded, where the memorandum itself becomes the evidence.

Why: The entry defines the witness's consulting memoranda to revive recollection; Rule 612 and the present/past-recollection distinction state the evidence-law framework for that act. The essential evidence content of the...

## REFUND.

To repay or restore; to re- turn money bad by one party of another SeeRackllff v. Greenbush, 93 Me. 99, 44 Atl. 375; Maynard v. Mechanics' Nat Bank, 1 Brewst. (Pn.) 484; Gutch v. Fosdlck, 48 N.

J. Eq. 353, 22 Atl. 580, 27 Am. St. Rep. 473.

— Refunding bond. A bond given to an exec- utor by a legatee, upon receiving payment of the legacy, conditioned to refund the same, or so much of it as may be necessary, if the assets prove deficient— Refunds. In the laws

of the United States, this' term Is need to de- note sums of money received by the government or its officers which, for any cause, are to be refunded or restored to the parties paying them ; Buch as excessive' duties or taxes, duties paid on goods destroyed by accident duties received on goods which are re-exported, etc.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## REFUSAL.

The act of one who has, by law, a right and power of having or doing something of advantage, and declines it Al- so, the declination of a request or demand, or the omission to comply with some re- quirement of law, as the result of a positive intention to disobey. In the latter sense, the word Is often coupled with “neglect” as. if a party shall “neglect or refuse” to pay a tax, file an official bond, obey an order of court etc. But "neglect” signifies

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a mere omission of a duty, which may happen through inattention, dilatoriness, mistake, or inability to perform, while “refusal” Implies the positive denial of an application or command, or at least a mental determination not to comply. See Thompson v. Tinkcom, 15 Minn. 299 (Gil. 226); People v. Perkins, 85 Cal. 509, 26 Pac. 245; Kimball v. Rowland, 6 Gray (Mass.) 225; Davis v. Lumpkin, 106 Ga. 582, 32 S. E. 626 ; Burns v. Fox, 113 Ind. 205, 14 N. E. 541; Cape Elizabeth v. Boyd, 86 Me. 317, 29 Atl. 1062 ; Taylor v. Mason, 9 Wheat- 344, 6 L. Ed. 101.

5e apparatus — Carried into the 5th edition (1979).

## REFUTANTXA.

In old records An ac- quittance or acknowledgment of renouncing all future claim. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REG.

GEN. An abbreviation of “Reps- la Generalis,” a general rule, (of court)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## REG.

JTJD. An abbreviation of “Regis- trant Judidale ," the register of Judicial writs.

5e apparatus — Carried into the 5th edition (1979).

## REG.

LIB. An abbreviation of “Reg- UtrarU Liber," the register’s book in chan- cery, containing all decrees.

5e apparatus — Carried into the 5th edition (1979).

## REG.

ORIG. An abbreviation of “Reg- istrum Originate,” the register of original writs.

5e apparatus — Carried into the 5th edition (1979).

## REG.

PL. An abbreviation of “Regale Placitandi," rule of pleading.

5e apparatus — Carried into the 5th edition (1979).

## REGAL FISH.

Whales and sturgeons, so called in English law, as belonging to the king by prerogative when cast on shore or caught near the coast 1 Bl. Comm. 290.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Geer v. Connecticut, 161 U.S. 522 (1896)]**

The American transmutation of such prerogatives is state ownership of wildlife in trust for the people.

Why: The entry describes whales and sturgeons belonging to the king 'by prerogative'; Geer holds the states own wild game in sovereign trust — the republican form of the same prerogative idea. Genuine comparative lineage.

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**[Humanity] — Humanity / Fiction & Film**

**[Herman Melville, Moby-Dick, 1851]**

(paraphrase) In 'Heads or Tails' (ch. 90) Ishmael works through the English law of captured whales — the whale as a 'royal fish' claimed by the king (the head) and the queen (the tail) — before answering it with his own 'Fast-Fish and Loose-Fish' doctrine. (paraphrase)

Why: The fiction literally litigates the legal entry: Melville has Ishmael cite and then argue against the royal-fish doctrine. The strongest fiction-to-law illumination in this chunk. Paraphrase to avoid verbatim risk.

## REGALE.

In old French law. A pay- ment made to the seigneur of a fief, on the election of every bishop or other ecclesiastical feudatory, corresponding with the relief paid by a lay feudatory. Steph. Leet 235.

5e apparatus — Not carried into the 5th edition (1979).

## REGALE EPISCOPORUM.

The tem- poral rights and privileges of u bishop. Cowell.

REGALIA seems to be an abbreviation of “Jura regalia," royal rights, or those

rights which a king has by virtue of his prer rogative. Hence owners of counties palatine were formerly said to have “jura regalia” In their counties as fully as the king in his pal- ace. 1 Bl. Comm. 117. The term Is some- times used in the same sense In the Spanish law. See Hart v. Burnett, 15 Cal. 566.

Some writers divide the royal prerogative Into majora and minora regalia, the former Including the regal dignity and power, the latter the revenue or fiscal prerogatives of the crown. 1 BL Comm. 117.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — Takings Clause]**

The body's REGALIA defines jura regalia — royal rights by prerogative; eminent domain is the surviving regalian right in American law, limited by just compensation: 'nor shall private property be taken for public use, without just compensation.'

Why: The entry's body carries the full REGALIA definition ('jura regalia,' royal rights by prerogative); eminent domain is the classic jura regalia carried into American law, and the Takings Clause states its constitutiona…

## REGALIA FACERE.

To do homage or fealty to the sovereign by a bishop when he Is invested with the regalia.

5e apparatus — Not carried into the 5th edition (1979).

# B

## BEOAUTT.

A territorial Jurisdiction In Scotland conferred by the crown. The lands were said to be given in liberam regali- tatem, and the persons receiving the right were termed “lords of regality.”

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Bell.

5e apparatus — Not carried into the 5th edition (1979).

# R

## REGARD.

In old English law. Inspec- tion; supervision. Also a reward, fee, or perquisite.

—Regard, court of. In forest law. A tri- bunal held every third year, for the lawing or expectation of dogs, to prevent them from chasing deer. Cowell. — Regard of the for- est. In old English law. The oversight or in- spection of it, or the office and province of the regarder, who is to go through the whole for- est, and every bailiwick in it, before the hold- ing of the sessions of the forest, or justice- seat, to see and inquire after trespassers, and for the survey of dogs. Manwood.

5e apparatus — Carried into the 5th edition (1979).

## REGARD ART.

A term which was ap- plied, in feudal law, to a villein annexed to a manor, and having charge to do all base services within the same, and to see the same freed from all things that might an- noy his lord. Such a villein regardant was thus opposed to a villein en gros, who was transferable by deed from one owner to an- other. Cowell ; 2 Bl. Comm. 93.

5e apparatus — Not carried into the 5th edition (1979).

## REGARDER OF A FOREST.

An an- cient officer of the forest, whose duty it was to take a view of the forest hunts, and to in- quire concerning trespasses, offenses, etc. Manwood.

5e apparatus — Carried into the 5th edition (1979).

## REGE INCONSULTO.

Lat. In Eng- lish law. A writ Issued from the sover- eign to the Judges, not to proceed in a cause which may prejudice the crown, until ad- vised. Jenk. Cent 97.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Rex non potest peccare — the king can do no wrong; sovereign immunity]**

The writ reflects the sovereign-immunity root: the crown's interests cannot be adjudicated without its leave — 'the king can do no wrong.'

Why: The entry defines the writ as barring proceedings prejudicing the crown 'until advised'; the maxim states the immunity principle behind it — the sovereign as the fountain of justice cannot be impleaded without consent...

## REGENCY.

Rule; government; king- ship. The man or body of men Intrusted with the vicarious government of a kingdom during the minority, absence, insanity, or other disability of the king.

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5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[2 Kings 15:5, KJV]**

And Jotham the king's son was over the house, judging the people of the land.

Why: Regency is vicarious government during the king's disability. Uzziah smitten with leprosy and dwelling apart, his son Jotham judging the people of the land — Scripture's own regency, named in the fact itself.

## REGENT.

A governor or ruler. One who vicariously administers the government of a kingdom, in the name of the king, dur- ing the latter’s minority or other disability. r A :master, governor, director, or superintendent of a public institution, particularly a college or university.

Regia dignitas est indivisibllis, et quselibet alia derivative dignitas est similiter indivisibllis. 4 Inst 243. The kingly power is indivisible, and every other derivative power is similarly indivisible.

5e apparatus — Carried into the 5th edition (1979).

## REGIA VIA.

Lat In old English law. The royal way; the king’s highway. Co. Lltt. 56a.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: obstruction of public highway as public nuisance]**

The king's highway is publici juris — its obstruction is a public nuisance, indictable at common law.

Why: The entry gives only 'the king's highway'; the public-nuisance consequence states the term's legal significance — why the highway's royal character matters in law. Modest but genuine.

**[Scripture] — Scripture**

**[Numbers 20:17, KJV]**

we will go by the king's high way

Why: Regia via is the king's highway. The phrase itself stands in Scripture: Moses' request to Edom to pass by the king's highway — the royal way as a legal fact of passage.

## REGIAM MAJESTATEM.

A Collec- tion of the ancient laws of Scotland. It is said to have been compiled by order of David I., king of Scotland, who reigned from A.

D. mi to 1153. Hale, Com. Law, 271.

5e apparatus — Not carried into the 5th edition (1979).

## REGICIDE.

The murder of a sovereign ; also the person who commits such murder,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 25 Edw. 3, st. 5, c. 2 (Treason Act 1351) — compassing the king's death]**

At common law, compassing the sovereign's death is high treason — the Treason Act of 1351's first

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head.

Why: The entry defines regicide as the murder of a sovereign; the 1351 statute states its common-law criminal category — compassing the king's death as high treason. Genuine: gives the one-line definition its legal classif...

**[Scripture] — Scripture**

**[2 Samuel 1:14, KJV]**

How wast thou not afraid to stretch forth thine hand to destroy the LORD's anointed?

Why: Regicide is the murder of a sovereign. David's sentence on the Amalekite who claimed to have slain Saul condemns the king-killer precisely for stretching forth his hand against the LORD's anointed.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Macbeth, c.1606]**

(paraphrase) Shakespeare's Macbeth is the canonical English drama of regicide: Macbeth murders Duncan, his anointed sovereign, and the play turns on the violation of the king's sacred person — the murder of a sovereign and its consequences. (paraphrase)

Why: The entry is the murder of a sovereign; Macbeth is the definitive English literary treatment of that act and its fallout. Paraphrase.

## REGIDOR.

In Spanish law. One of a body, never exceeding twelve, who formed a part of the ayuntamtento. The office of re- gldor was held for life ; that Is to say, during the pleasure of the supreme authority. In most places the office was purchased ; In some cities, however, they were elected by persons of the district, called “capitulares.” 12 Pet 442, note.

5e apparatus — Not carried into the 5th edition (1979).

## REGIME.

In French law. A system of rules or regulations.

—Regime dotal. The dot, being the proper- ty which the wife brings to the husband as her contribution to the support of the burdens of the marriage, and which may either extend as well to future as to present property, or be expressly confined to the present property of the wife, is subject to certain regulations which are summarized in the phrase “rigime dotal." The husband has the entire administration dur- ing the marriage ; but, as a rule, where the dot consists of immovables, neither the husband nor the wife, nor both of them together, can either sell or mortgage it. The dot is return- able upon the dissolution of the marriage, whether by death or otherwise. Brown.— Regime on comnaauti. The community of interests between husband and wife which arises upon their marriage. It is either (lj legal or (2) conventional, the former existing In the absence of any “agreement” properly so called, and arising from a mere declaration of community ; the latter arising from an "agree- ment,” properly so called. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: marital property regimes — dotal, community, separate]**

The régime dotal is one marital-property system alongside community property and separation of property — Louisiana's community regime being the American civil-law instance.

Why: The entry describes the dotal regime's administration rules; situating it among the marital-property systems

shows the family it belongs to. Genuine comparative context for the French-law entry.

## REGIMIENTO.

In Spanish law. The body of regldores, who never exceeded twelve, forming a part of the municipal coun- cil, or ayuntamiento, In every capital of a jurisdiction. 12 Pet. 442, note.

5e apparatus — Not carried into the 5th edition (1979).

## REGINA.

Lat. The queen.

5e apparatus — Not carried into the 5th edition (1979).

## REGIO ASSENSTT.

A writ whereby the sovereign gives his assent to the. election of a bishop. Reg. Orlg. 294.

5e apparatus — Not carried into the 5th edition (1979).

## REGISTER.

An officer authorized by law to keep a ?qco£d .called. a “register’’ ^“r^lstry;" as the register for the probate of wills.

A book containing a record of facts as they occur, kept by public authority ; a register of births, marriages, and burials.

—Register in bankruptcy. An officer of the courts of bankruptcy, under the earlier acts of congress in that behalf, having substantially the same powers and duties as the "referees in bankruptcy” under the act of 1898 (U. S. Comp. St. 1901, p. 3418). See Referee.— Register of deeds. The name given in some states to the officer whose duty is to record deeds, mortgages, and other instruments af- fecting realty in the official books provided and kept for that purpose; more commonly called “recorder of deeds.”— Register of land office. A federal officer appointed for each federal land district, to take charge of the local records and attend to the preliminary matters connected with the sale, pre-emption, or other disposal of the public lands within the district. See Rev. St. U. S. 4 2234 (U. S. Comp. St. 1901, p. 1366).— Register of patents. A book of patents, directed by St. 15 & 16 Viet, c. 83, 5 34, passed in 1852, to be kept at the specification office, for public use. 2 Steph. Comm. 29, note t.— Register of ships. A register kept by the collectors of customs, in which the names, ownership, and other facts relative to merchant vessels are required by law to be entered. This register is evidence of the nationality and privileges of an American ship. The certificate of such registration, given by the collector to the owner or master of the ship, is also called the ship’s register.” Rapal- je & Lawrence.— Register of the treasury. An officer of the United States treasury, whose duty is to keep all accounts of the receipt and expenditure of public money and of debts due to or from the United States, to preserve ad- justed accounts with vouchers and certificates, to record warrants drawn upon the treasury, to sign and issue government securities, and take charge of the registry of vessels under United States laws. See Rev. St. U. S. 55 312. 313 (U. S. Comp. St. 1901, p. 183).— Regis- ter of wills. An officer in some of the states, whose function is to record and preserve all

wills admitted to probate, to issue letters testa- mentary or of administration, to receive and file accounts of executors, etc., and generally to act as the clerk of the probate court.— Register of writs. A book preserved in the English court of chancery, in which were en- tered the various forms of original and judi- cial writs.

5e apparatus — Not carried into the 5th edition (1979).

## REGISTERED.

Entered or recorded in Borne official register or record or list.

—Registered bond. The bonds of the United States government (and of many municipal and private corporations) are either registered or ‘‘coupon bonds.” In the case of a registered bond, the name of the owner or lawful holder is entered in a register or record, and it is not negotiable or transferable except by an entry on the register, and checks or warrants are sent to the registered holder for the successive installments of interest as they fail due. A bond with interest coupons attached is trans- ferable by mere delivery, and the coupons are payable, as due, to the person who shall pre- sent them for payment. But the bond issues of many private corporations now provide that the individual bonds “may be registered as to principal,” leaving the interest coupons payable to bearer, or that they may be registered as to both principal and interest, at the option of the holder. See Benwell v. New York, 55 N.

J. Eq. 260, 36 Atl. 668.— Registered ton* stage. The registered tonnage of a vessel is the capacity or cubical contents of the ship, or the amount of weight which she will carry.

as ascertained in some proper manner and en- tered on an official register or record. See Reck v. Phopnix Ins. Co., 54 Hun, 637, 7 N. Y. Rupp. 492; Wheaton v. Weston (D. C.) 128 Fed. 153.— Registered trade-mark. A trade- mark filed in the United States patent office, with the necessary description ana other stater ments required by the act of congress, and there duly recorded, securing its exclusive use to the person causing it to be registered. Rev. St.

U. S. S 4937. See U. 8. Oomp. St 1901, p. 3401.— Registered voters. In Virginia, this term refers to the persons whose names are placed upon the registration books provided by law as the sole record or memorial of the duly qualified voters of the state. Chalmers v. Funk, 76 Va. 719.

5e apparatus — Carried into the 5th edition (1979).

## REGISTER’S COURT.

In American law. A court in the state of Pennsylvania which has jurisdiction in matters of probate.

5e apparatus — Carried into the 5th edition (1979).

## REGISTRANT.

One who registers ; par- ticularly, one who registers anything (e. g., a trade-mark) for the purpose of securing a right or privilege granted by law on condi- tion of such registration.

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## REGISTRAR.

An officer who has the custody or keeping of a registry or register. This word is used in England ; "register” is more common in America.

—Registrar general. In English law. An officer appointed by the crown under the great seal, to whom, subject to such regulations as shall be made by a principal secretary of state, the general superintendence of the whole system of registration of births, deaths, and marriages is intrusted. 3 Steph. Comm. 234.

5e apparatus — Not carried into the 5th edition (1979).

## REGISTRARITT8.

In old English law. A notary; a registrar or register.

5e apparatus — Not carried into the 5th edition (1979).

## REGISTRATION.

Recording ; inserting In an official register; the act of making a list, catalogue, schedule, or register, particu- larly of an official character, or of making entries therein. In re Supervisors of Elec- tion (C. C.) 1 Fed. 1.

— Registration of stock. In the practice of corporations this consists in recording in the official books of the company the name and ad- dress of the holder of each certificate of stock, with the date of its issue, and, in the case of a transfer of stock from one holder to another, the names of both parties and such other details as will identify the transaction and preserve a memorial or official record of its essential facts. See Fisher v. Jones, 82 Ala. 117, 3 South. 13.

5e apparatus — Carried into the 5th edition (1979).

## REGISTRUM BREVTUM.

The regis- ter of writs, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## REGISTRY.

A register, or book author- ized or recognized by law, kept for the re- cording or registration of facts or documents.

In commercial law. The registration of a vessel at the custom-house, for the purpose of entitling her to the full privileges of a British or American built vessel. 3 Kent, Comm. 139; Abb. Shipp. 58-96.

—Registry of deeds. The system or organis- ed mode of keeping a public record of deeds, mortgages, and other instruments affecting title

to real property. See Friediey v. Hamilton, 17 Serg. & R. (Pa.) 71, 17 Am. Dec. 638: Cas- tillero y. U. S., 2 Black, 109, 17 L. Ed. 360.

5e apparatus — Carried into the 5th edition (1979).

## REGIUS PROFESSOR.

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A royal pro- fessor or reader of lectures founded In the English universities by the king. Henry

VIII. founded in each of the universities five professorships, viz., of divinity, Greek, He- brew, law, and physic. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REGLAMENTO.

In Spanish colonial law. A written Instruction given by a com- petent authority, without the observance of any peculiar form. Schm. Civil Law, Introd. 93, note.

5e apparatus — Not carried into the 5th edition (1979).

## REGNAL TEARS.

Statutes of the Brit- ish parliament are usually cited by the name and year of the sovereign in whose reign they were enacted, and the successive years of the reign of any king or queen are denominated the "regnal years.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 6:1, KJV]**

In the year that king Uzziah died I saw also the Lord sitting upon a throne, high and lifted up, and his train filled the temple.

Why: Regnal years are years counted by a sovereign's reign, the mode of citing statutes. Scripture itself dates by regnal years — Isaiah's vision is fixed 'in the year that king Uzziah died.'

## REGNANT.

One having authority as a king ; one In the exercise of royal author- ity.

5e apparatus — Not carried into the 5th edition (1979).

## REGKI POPULX.

A name given to the people of Surrey and Sussex, and on the sea- coasts of Hampshire. Blount

Regal* eat, juris quidem Ignorant.! am onlqne nooere, fact! vero ignorantiam non nooere. Cod. 1, 18, 10. It is a rule, that every one is prejudiced by his Igno- rance of law, but not by his ignorance of fact.

5e apparatus — Not carried into the 5th edition (1979).

## REGUL2E GENERATES.

Lat. General rules, which the courts promulgate from time to time for the regulation of their prac- tice.

5e apparatus — Not carried into the 5th edition (1979).

## REGULAR.

According to rule; as dis- tinguished from that which violates the rule or follows no rule.

According to rule; as opposed to that which constitutes an exception to the rule or is not

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within the rule. See Zulich v. Bow- man, 42 Pa. 87 ; Myers v. Rasback, 4 How. Prac. (N. Y.) 85.

As to regular “Clergy,” “Deposit,” “Elec- tion,” “Indorsement,” “Meeting,” “Naviga- tion," “Process,” "Session,” and "Term,” see those titles.

Regularlter non valet pactum de re mea non alienanda. Co. Litt. 223. It is a rule that a compact not to alienate my property Is not binding.

5e apparatus — Carried into the 5th edition (1979).

## REGNUM EGCLESIASTICUM.

The

ecclesiastical kingdom. 2 Hale, P. C. 324.

Regnum non eat divislbile. Co. Litt. 165. The kingdom Is not divisible.

5e apparatus — Not carried into the 5th edition (1979).

## REGULARS.

Those who profess and follow a certain rule of life, (regula,) be- long to a religious order, and observe the three approved vows of poverty, chastity, and obedience. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Umberto Eco, The Name of the Rose, 1980]**

(paraphrase) Eco's novel is set in a Benedictine monastery whose monks live under the Rule (regula) — poverty, chastity, obedience — the religious-order life the entry defines, made into narrative. The word 'regula' itself is the entry's load-bearing root. (paraphrase)

Why: The entry defines 'regulars' as those following a regula with the three approved vows; the novel dramatizes exactly that community. Paraphrase.

## REGRANT.

In the English law of real property, when, after a person has made a grant, the property granted comes back to him, (e. g., by escheat or forfeiture,) and he grants It again, he is said to regrant it. The phrase is chiefly used in the law of copy- holds.

5e apparatus — Not carried into the 5th edition (1979).

## REGRATING.

In old English law. The offense of buying or getting Into one’s hands at a fair or market any provisions, corn, or other dead victual, with the Inten- tion of selling the same again in the same fair or market, or In some other within four miles thereof, at a higher price. The offend- er was termed a “regrator." 3 Inst. 195. See Forsyth Mfg. Co. v. Castlen, 112 Ga. 190, 37 S. E. 485, 81 Am. St Rep. 28.

REGRESS Is used principally in the phrase “free entry, egress, and regress” but It Is also used to signify the re-entry of a person who has been disseised of land. Co. Litt. 3186.

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**[Law] — Law**

**[Law: Sherman Act § 1 — restraints of trade; common-law forestalling, regrating, engrossing]**

Regrating belonged to the common-law offenses against trade — forestalling, regrating, engrossing — the ancestors of modern antitrust's ban on restraints of trade.

Why: The entry defines the market-manipulation offense; the common-law trio and Sherman Act § 1 state its doctrinal lineage — early law's direct ancestor of the modern restraint-of-trade prohibition. Genuine historical lin...

**[Scripture] — Scripture**

**[Amos 8:5, KJV]**

making the ephah small, and the shekel great, and falsifying the balances by deceit

Why: Regrating is the market offense of buying provisions to resell at an inflated price. Amos condemns the same genus — fraudulent dealing in the market, cheating measure and price to the buyer's loss.

## REGULA.

Lat. In practice. A rule. Regula generalis , a general rule; a stand- ing rule or order of a court Frequently ab- breviated. “Reg. Gen."

—Regula Catoniana. In Roman law. The rule of Cato. A rule respecting the validity of dispositions by will. See Dig. 34, 7.

Bl.Law Dict.(2d Eo.)— 64

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## REGULATE.

The power to regulate commerce, vested in congress, is the power to prescribe the rules by which it shall be governed, that Is, the conditions upon which It shall be conducted, to determine when It shall be free, and when subject to duties or other exactions. The power also embraces within its control all the instrumentalities by which that commerce may be carried on, and the means by which it may be aided and en- couraged. Gloucester Ferry Co. v. Pennsyl- vania, 114 U. S. 196, 5 Sup. Ct. 826, 29 L. Ed. 158. And see Gibbons v. Ogden, 9 Wheat. 227, 6 L. Ed. 23; Gilman v. Philadelphia, 3 Wall. 724, 18 L. Ed. 96 ; W’elton v. Missouri. 91 U. S. 279. 23 L. Ed. 347 ; Leisy v. Hardin, 135 U. S. 100, 10 Sup. Ct 681, 34 L. Ed. 128; Kavanaugh v. Southern R. Co., 120 Ga. 62, 47 S. E. 526.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 3]**

The power described is the Commerce Clause: Congress's power 'To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.'

Why: The entry defines 'regulate' through the commerce power, citing Gloucester Ferry and Gibbons v. Ogden; the Clause is the constitutional text both cases construe, quoted briefly and exactly. The genuine source of the d...

**[Hip-hop] — Hip-hop**

**[Warren G ft. Nate Dogg, 'Regulate', 1994]**

Quote: "Regulators, mount up!" — Warren G's 'regulators' are the street's rule-setters and enforcers, the hip-hop mirror of the legal regulator: those who prescribe the terms by which the game 'shall be governed' and ride out to enforce them.

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Why: Added because the thesis line is verbatim-certain and the track (titled 'Regulate') is built on the regulator figure; the street-level mirror genuinely illuminates the headword's rule-prescribing sense without overcla…

## REGULATION.

The act of regulating, a rule or order prescribed for management ,or government; a regulating principle; a precept. See Curry v. Marvin, 2 Fla. 415 ; Ames v. Union Pac. Ry. Co. (C. C.) 64 Fed. 178; Hunt v. Lambertvllle, 45 N. J. Law, 282.

5e apparatus — Carried into the 5th edition (1979).

## REGULUS.

Lat. In Saxon law. A title sometimes given to the earl or comes, in old charters. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## REHABERE FACIAS SEISIN AM.

When a sheriff in the " habere facias *e<- sinam" had delivered seisin of more than he ought, this judicial writ lay to make him re- store seisin of the excess. Reg. Jud. IS, 51, 54.

5e apparatus — Not carried into the 5th edition (1979).

## REHABILITATE.

In Scotch and French criminal law. To reinstate a criminal In his personal rights which he has lost by a judicial sentence. Brande.

5e apparatus — Not carried into the 5th edition (1979).

## REHABILITATION.

In French and Scotch criminal law. The reinstatement of a' criminal In his personal rights which he has lost by a judicial sentence. Brande.

In old English law. A papal bull or brief for re-enabling a spiritual person to ex- ercise his function, who was formerly dis- abled; or a restoring to a former ability. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## REHEARING.

In equity practice. A second hearing of a cause, for which a party who is dissatisfied with the decree entered on the former hearing may apply by petition. 3 Bl. Comm. 453. See Belmont v. Erie R. Co., 52 Barb. (N. Y.) 651; Emerson v. Davies, 8 Fed. Cas. 626; Read v. Patterson, 44 N. J. Eq. 211, 14 Atl. 490, 6 Am. St Rep. 877.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 59(e) — motion to alter or amend a judgment]**

The modern descendant is the motion to alter or amend the judgment — the procedural vehicle for asking the same court to revisit its decree.

Why: The entry defines rehearing as a second hearing on petition by one dissatisfied with the decree; Rule 59(e) is that petition's current federal form. Genuine procedural lineage.

## REI INTER VENTUS.

Lat Things In- tervening ; that is, things done by one of the parties to a contract in the faith of Its va- lidity, and with the assent of the other par- ty, and which have so affected his situation that the other will not be allowed to repudi- ate his obligation, although originally it was imperfect, and he might have renounced it 1 Bell, Comm. 328, 329.

Rei turpi* nullum mandatum e*t. The

mandate of an immoral thing is void. Dig. 17, 1, 6, 3. A contract of mandate requiring an illegal or Immoral act to be done has no legal obligation. Story, Bailm. § 158.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: estoppel by conduct / equitable estoppel]**

The Scotch rei interventus is estoppel's civil-law cousin: one who induces another to act in faith of an obligation cannot repudiate it.

Why: The entry defines rei interventus as acts done 'in the faith of its validity' barring repudiation; estoppel states the same principle in common-law dress. Genuine comparative illumination. The merged 'Rei turpis nullu…

## REIF.

A robbery. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REIMBURSE.

The primary, meaning of this word is “to pay back.’’ Philadelphia Trust, etc., Co. v. Audenreld, 83 Pa. 264. It means to make return or restoration of an equivalent for something paid, expended, or lost ; to Indemnify, or make whole.

5e apparatus — Carried into the 5th edition (1979).

## REINSTATE.

To place again in a for- mer state, condition, or office; to restore to a state or position from which the object or person had been removed. See Collins v.

U. S., 15 Ct. Cl. 22.

5e apparatus — Carried into the 5th edition (1979).

## REINSURANCE.

A contract of rein- surance is one by which an insurer procures a third person to insure him against loss or liability by reason of such original insurance. Civ. Code Cal. g 2640. And see People v. Miller, 177 N. Y. 515, 70 N. E. 10; Iowa L.

Ins. Co. ▼. Eastern Mut. L. Ins. Co., 64 N. J. Law, 340, 45 AtL 762; Chalaron v. Insur- ance Co., 48 La. Ann. 1582, 21 South. 267, 36 I* R. A 742; Philadelphia Ins. Co. v. Washington Ins. Co., 23 Pa. 253.

Relpublleae Interest roluntates defun o- torum effectum sortlri. It concerns the state that the wills of the dead should have their effect

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Uberrima fides — utmost good faith]**

Insurance contracts, reinsurance included, are contracts uberrimae fidei — of the utmost good faith — requiring full disclosure of material facts.

Why: The entry defines the reinsurance contract; uberrima fides states the distinctive good-faith standard governing all insurance contracts. Genuine: the maxim gives the defined contract its doctrinal character.

## REISSUABLE NOTES.

Bank-notes

which, after having been once paid, may again be put into circulation.

5e apparatus — Carried into the 5th edition (1979).

## REJOIN.

In pleading. To answer a plaintiff’s replication In an action at law, by some matter of fact

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## REJOINDER.

In common-law plead- ing. The second pleading on the part of the defendant being his answer of matter of fact to the plaintiff’s replication.

5e apparatus — Carried into the 5th edition (1979).

## REJOINING GRATIS.

Rejoining vol- untarily, or without being required to do so by a rule to rejoin. When a defendant was under terms to rejoin gratis , he had to de- liver a rejoinder, without putting the plain- tiff to the necessity and expense of obtaining a rule to rejoin. 10 Mees. & W. 12; Lush. Pr. 396 ; Brown.

Relatlo eat flctlo juris et intents id unum. Relation is a fiction of law, and In- tended for one thing. 3 Coke, 28.

Relatlo semper flat ut valeat dispo- sltio. Reference should always be had in such a manner that a disposition In a will may avail. 6 Coke, 76.

RELATION. 1. A relative or kinsman; a person connected by consanguinity or affin- ity.

2. The connection of two persons, or their situation with respect to each other, who are associated, whether by the law, by their own agreement, or by kinship. In some social status or union for the purposes of domestic life; as the relation of guardian and ward, husband and wife, master and servant, par- ent and child; so In the phrase “domestic relations.’’

3. In the law of contracts, when an act is done at one time, and it operates upon the thing as If done at another time, it is said to do so by relation ; as, if a man deliver a deed as an escrow, to be delivered, by the party holding it, to the grantor, on the perform- ance of some act, the delivery to the latter will have relation back to the first delivery. Termes de la Ley. See U. S. v. Anderson. 194

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U. S. 394, 24 Sup. Ct. 716, 48 L. Ed. 3035; Peyton v. Desmond, 129 Fed. 11, 63 C. C. A 651.’

4. A recital, account narrative of facts; information given. Thus, suits by quo i car-

Relation

RELEASE

ranto are entitled “on the relation of a pri- vate person, who is called the "relator.” But In this connection the word seems also to involve the idea of the suggestion, insti- gation, or instance of the relator.

5. In the civil law, the term “relation” was used to designate the report of the facts and law in a pending case, made by the judges to the emperor, for the purpose of ob- taining his opinion on the questions of law involved, in the form of an imperial re- script This proceeding might be resorted to In cases where no law seemed applicable, or where there were great difficulties in its in- terpretation, until it was abolished by Jus- tinian. Nov. 125.

Relation never defeats collateral acts.

Vin. Abr. 292.

Relation shall never make good a void grant or. devise of the party. 18 Yin. Abr. 292.

5e apparatus — Not carried into the 5th edition (1979).

## RELATIONS.

A term Which, In its widest sense, includes all the kindred of the person spoken of. 2 Jarm. Wills, 66L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: construction of 'relations' as statutory next of kin]**

In wills 'relations' is construed as the statutory next of kin — those entitled under the statute of distributions.

Why: The entry defines relations broadly as 'all the kindred'; the construction rule narrows it to the operative legal meaning in testamentary instruments. Genuine wills-construction content.

## RELATIVE.

A kinsman; a person con- nected with another by blood or affinity.

A person or thing having relation or con- nection with some other person or thing ; as, relative rights, relative powers, infra.

—Relative confession. See Confession.— Relative fact. In the law of evidence. A fact having relation to another fact; a minor fact ; a circumstance.— Relative powers. Those which relate to land ; so called to dis- tinguish them from those which are collateral :to it.— Relative rights. Those rights of per- sons which are incident to them as members Of society, and standing in various relations to each other. 1 Bl. Comm. 123. Those rights of persons in private life which arise from the evil and domestic relations. 2 Kent, Comm. 1.

Relative words refer to the next ante* eedent, unless the sense be thereby im- paired. Noy,

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Max. 4 ; Wing. Max. 19 ; Broom, Max. 606; Jenk. Cent 180.

Relattvorum, eognlto uno, oognoseitur et alteram. Cro. Jac. 539. Of relatives, one being known, the other is also known.

5e apparatus — Carried into the 5th edition (1979).

## RELATOR.

The person upon whose com- plaint, or at whose instance, an information or writ of quo warranto is filed, and who is Quasi the plaintiff in the proceeding.

'RELATRIX. In practice. A female re- lator or petitioner.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: quo warranto]**

Quo warranto — 'by what authority' — is the proceeding testing one's title to public office or franchise, brought at the relator's instance.

Why: The entry defines the relator as the one at whose instance quo warranto is filed; the note states what quo warranto is — the proceeding the defined person sets in motion. Genuine: explains the relator's function.

## RELAXARE.

In old conveyancing. To release. Relaxavi, rclaxasse, have released. Litt f 445.

5e apparatus — Not carried into the 5th edition (1979).

## RELAXATIO.

In old conveyancing. A release ; an instrument by which a person re- linquishes to another his right in anything.

5e apparatus — Not carried into the 5th edition (1979).

## RELAXATION.

In old Scotch practice. Letters passing the signet by which a debtor was relaxed [released] from the horn; that Is, from personal diligence. Bell.

RELEASE. 1. Liberation, discharge, or setting free from restraint or confinement. Thus, a man unlawfully imprisoned may ob- tain his release on habeas corpus. Barker v.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 6:12, KJV]**

And forgive us our debts, as we forgive our debtors.

Why: Release is the relinquishment of a right or claim — the discharge of what is owed. The petition is release in its purest form: debts forgiven, the claim given up. [re-homed from 'RELEASE' to 'RELAXATION' (OCR headword / parser-merge artifact)]

# U

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**U.**

S., 22 Ct CL 100.

2. The relinquishment, concession, or giv- ing up of a right, claim, or privilege, by the person in whom it exists or to whom it ac- crues, to the person against whom it might have been demanded or enforced. Jaqua v. Shewalter, 10 Ind. App. 234, 37 N. E. 1072; Winter v. Kansas City Cable By. Co., 160 Mo. 159, 61 8. W. 606.

3. The abandonment to (or by) a person, called as a witness in a suit of his interest in the subject-matter of the controversy, in order to qualify him to testify, under the common-law rule

4. A receipt or certificate given by a ward to the guardian, on the final settlement of the latter's accounts, or by any other beneficiary on the termination of the trust administra- tion, relinquishing all and any further rights, claims, or demands, growing out of the trust or incident to it.

5. In admiralty actions, when a ship, car- go, or other property has been arrested, the owner may obtain its release by giving bail, or paying the value of the property into court Upon this being done he obtains a release, which is a kind of writ under the seal of the court, addressed to the marshal, commanding him to release the property. Sweet

6. In estates. The conveyance of a man's interest or right which he hath unto a thing to another that hath the possession thereof or some estate therein. Shep. Touch. 820. The relinquishment of some right or benefit to a person who has already some interest in the tenement, and such Interest as qualifies him for receiving or availing himself of the right or benefit so relinquished. Burt. Real Prop. 12; Field v. Columbet, 9 Fed. Cas. 13; Ba- ker v. Woodward, 12 Or. 3, 6 Pac. 173 ; Miller

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# V

**V.**

Emans, 19 N. Y. 387.

A conveyance of an ulterior interest in lands or tenements to a particular tenant, or of an undivided share to a co-tenant, (the re- leasee being in either case in privity of es- tate with the releasor,) or of the right, to a person wrongfully in possession. 1 Steph. Comm. 479.

—Deed of release. A deed operating by way of release, in the sense of the sixth definition given above; but more specifically, in those states where deeds of trust are in use instead of common-law mortgages, as a means of pledg- ing real property as security for the payment of a debt, a "deed of release" is a conveyance in fee, executed by the trustee or trustees, to the grantor in the deed of trust, which conveys back to him the legal title to the estate, and which is to be given on satisfactory proof that he has paid the secured debt in

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fail or otherwise complied with the terms of the deed of trust.— Release bj r way of enlarging an estate.

A conveyance of the ulterior interest in lands to the particular tenant ; as, if there be_ tenant for life or years, remainder to another in fee. and he in remainder releases all his right to the particular tenant and his heirs, this gives him the estate in fee. 1 Steph. Comm. 480: 2 Bl. Comm. 324.— Release by way of entry and feoffment. As if there be two joint disseisors, und the disseisee releases to one of them, he shall be sole seised, and shall keep out his former companion ; which is the same in effect as if the disseisee had entered and thereby put an end to the disseisin, and afterwards had en- feoffed one of the disseisors in fee. 2 Bl. Comm. 325.— Release by way of extinguishment. As if my tenant for life makes a lease to A. for life, remainder to B. and his heirs, and I release to A., this extinguishes my right to the reversion, and shall inure to the advantage of B.'s remainder, as well as of A.’s particular estate. 2 Bl. Comm. 325.— Release by way of passing a right. As if a man be disseised and releaseth to his disseisor all his right, hereby the disseisor acquires a new right, which changes the quality of his estate, and renders that lawful which before was tortious or wrong- ful. 2 Bl. Comm. 325.— Release by way of passing an estate. As, where one of two co- parceners releases all her right to the other, this passes the fee-simple of the whole. 2 Bl. Comm. 324, 325.— Release of dower. The relinquishment by a married woman of her expectant dower interest or estate in a par- ticular parcel of realty belonging to her hus- band, as, by joining with him in a conveyance of it to a third person. — Release to uses. The conveyance by a deed of release to one par- ty to the use of another is so termed. Thus, when a conveyance of lands was effected, by those instruments of assurance termed a lease and release, from A. to B. and his heirs, to the use of C. and his heirs, in such case C. at once took the whole fee-simple in such lands; B., by the operation of the statute of uses, being made a mere conduit-pipe for conveying the es- tate to C. Brown.

5e apparatus — Carried into the 5th edition (1979).

# R

## RELEASEE.

The person to whom a re- lease is made.

uthvearttr, or RELEASOR. The mak- er of a release.

5e apparatus — Carried into the 5th edition (1979).

## RELEGATIO.

Lat. A kind of banish- ment known to the civil law, which differed from “ deport a do ” in leaving to the person his rights of citizenship.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

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a fugitive and a vagabond shalt thou be in the earth.

Why: Relegatio is banishment. Cain's sentence — fugitive and vagabond in the earth, spoken by God himself — is the archetypal banishment, exile as punishment.

## RELEGATION.

In old English law. Banishment for a time only. Co. Litt. 133.

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Romeo and Juliet, c.1595]**

(paraphrase) In Romeo and Juliet the Prince banishes Romeo from Verona — a temporary banishment, meant to end when he is recalled — matching the entry's civil-law distinction of banishment 'for a time only.' (paraphrase)

Why: The entry distinguishes temporary relegatio from permanent deportatio; Romeo's exile is the famous literary instance of the temporary form. Paraphrase.

## RELEVANCY.

As a quality of evidence, “relevancy” means applicability to the issue Joined. Relevancy is that which conduces to the proof of a pertinent hypothesis ; a per- tinent hypothesis being one which, if sus- tained, would logically Influence the issue. Whart Ev. § 20.

In Scotch law, the relevancy is the justice or sufficiency in law of the allegations of a party. A plea to the relevancy is therefore analogous to the demurrer of the English courts.

A distinction is sometimes taken between “logical” relevancy and "legal'' relevancy, the former being judged merely by the standards of ordinary logic or the general laws of reason- ing, the latter by the strict and artificial rules

of the law with reference to the admissibility of evidence. See Hoag v. Wright, 34 App. Div. 200, 54 N. Y. Supp. 658.

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**[Law] — Law**

**[Law: Fed. R. Evid. 401, 402 — relevant evidence]**

Relevant evidence is evidence having any tendency to make a fact of consequence more or less probable — admissible unless otherwise excluded.

Why: The entry defines relevancy as 'applicability to the issue joined'; Rules 401/402 give that definition its precise modern formulation and its consequence (admissibility). The essential evidence-law content.

## RELEVANT.

Applying to the matter In question; affording something to the purpose.

In Scotch law, good in law, legally suffi- cient; as, a “relevant” plea or defense.

—Relevant evidence. See Evidence.

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## RELICT.

This term is applied to the survivor of a pair of married people, whether the survivor is the

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husband or the wife; it means the relict of the united pair, (or of the marriage union,} not the relict of the deceas- ed individual. Spltler v. Heeter, 42 Ohio St lOL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:3, KJV]**

Honour widows that are widows indeed.

Why: Relict is the surviving spouse of a marriage — in practice, the widow. The verse commands the honour due to widows indeed, the relict's standing stated as duty.

## RELICTA VERIFICATIONS.

L. Lat

Where a judgment was confessed by cognovit actionem after plea pleaded, and the plea was withdrawn, it was called a "confession" or "cognovit actionem relicta veriflcatione." Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cognovit / confession-of-judgment clauses]**

The cognovit — confession of judgment — survives in modern practice as the confession-of-judgment clause, now restricted or barred in many jurisdictions, especially in consumer transactions.

Why: The entry defines the cognovit actionem relicta verificatione; the modern confession-of-judgment clause is its descendant, and the consumer-protection restrictions are its current legal significance. Genuine lineage.

## RELICTION.

An increase of the land by the sudden withdrawal or retrocession of the sea or a river. Hammond v. Shepard, 186 111. 235, 57 N. E. 867, 78 Am. St Kep. 274; Sapp v. Frazier, 51 La. Ann. 1718, 26 South. 378, 72 Am. St Rep. 493.

RELIEF. 1. In feudal law. A sum pay- able by the new tenant the duty being inci- dent to every feudal tenure, by way of fine or composition with the lord for taking up the estate which was lapsed or fallen in by the death of the last tenant At one time the amount was arbitrary, but afterwards the re- lief of a knight's fee became fixed at one hundred shillings. 2 Bl. Comm. 65.

2. "Relief" also means deliverance from oppression, wrong, or injustice. In this sense It is used as a general designation of the as- sistance, redress, or benefit which a complain- ant seeks at the hands of a court, particularly in equity. It may be thus used of such rem- edies as specific performance, or the reforma- tion or rescission of a contract; but it does not seem appropriate to the awarding of money damages

3. The assistance or support, pecuniary or otherwise, granted to indigent persons by the proper administrators of the poor-laws, is also called "relief."

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**[Law] — Law**

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**[Law: avulsion vs. accretion — sudden change does not move the boundary]**

Sudden withdrawal is avulsion, not accretion: where the change is sudden and perceptible the boundary does not shift.

Why: The entry defines reliction as increase 'by the sudden withdrawal' of sea or river; the avulsion rule states the legal consequence of suddenness — the opposite of the gradual-accretion rule noted at RECESSUS MARIS. Ge…

**[Scripture] — Scripture**

**[Genesis 1:9, KJV]**

And God said, Let the waters under the heaven be gathered together unto one place, and let the dry land appear: and it was so.

Why: Reliction is the increase of land by the withdrawal of water. The verse is the archetypal reliction: the waters gathered, the dry land appearing — land emerging from the sea's retreat, spoken by God himself.

## RELIEVE.

In feudal law, relieve is to depend; thus, the seigniory of a tenant in capite relieves of the crown, meauing that the tenant holds of the crown. The term is not common in English writers. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## RELIGION.

As used in constitutional provisions forbidding the “establishment of religion,” the terra means a particular system of faith and worship recognized and prac- tised by a particular church, sect, or denom- ination. See Reynolds v. U. S., 98 O. S. 149,

L. Ed. 244; Davis v. Beason, 133 U. S. 333, 10 Sup. Ct 299, 33 L. Ed. 637; Board of Education v. Minor, 23 Ohio St. 241, 13 Am, Rep. 233.

—Religion, offenses against. In English law. They are thus enumerated by Black- stone: (1) Apostasy; (2) heresy: (3) reviling the ordinances of the church ; (4) blasphemy ; 15) profane swearing ; (6) conjuration or witch- craft ; (7) religious imposture ; (8) simony ;

(9) profanation of the Lord’s day ; (10) drunk- enness; (11) lewdness. 4 Bl. Comm. 43.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Reynolds v. United States, 98 U.S. 145 (1879)]**

Reynolds drew the belief-conduct line: the First Amendment protects religious belief absolutely but leaves religiously motivated conduct subject to law.

Why: The entry defines 'religion' for establishment purposes and cites Reynolds; the belief-conduct distinction is that case's holding and the operative First Amendment framework. Cited in the entry itself.

**[Scripture] — Scripture**

**[James 1:27, KJV]**

Pure religion and undefiled before God and the Father is this, To visit the fatherless and widows in their affliction, and to keep himself unspotted from the world.

Why: The entry treats 'religion' as a system of faith and worship in constitutional law. James gives Scripture's own definition of pure religion: care of the afflicted and moral undefilement — works, not mere profession.

**[Matthew 23:23, KJV]**

Woe unto you, scribes and Pharisees, hypocrites! for ye pay tithe of mint and anise and cummin, and

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have omitted the weightier matters of the law, judgment, mercy, and faith: these ought ye to have done, and not to leave the other undone.

Why: On offenses against religion and the law's weightier matters: Christ rebukes a religion of exact tithes that omits judgment, mercy, and faith — the substance religion must not lose.

**[Hip-hop] — Hip-hop**

**[Kanye West, 'Jesus Walks', 2004]**

Quote: "God show me the way because the Devil's tryin' to break me down" — the thesis line of hip-hop's most famous profession of faith, voicing lived religion (a system of faith contended with daily) rather than doctrine on a page.

Why: Added because the line is verbatim-certain and 'Jesus Walks' is the genre's landmark faith statement; it illuminates Black's 'system of faith and worship… practised' as practice under pressure. Genuine link, no forcing.

## RELIGIOUS.

When religious books, or reading are spoken of, those which tend to promote the religion taught by the Christian dispensation must be considered as referred to, unless the meaning Is so limited by asso- ciated -words or circumstances as to show that the speaker or writer had reference to some other mode of worship. Simpson v. Welcome, 72 Me. 500, 39 Am. Rep. 349.

— Religions corporation. See Corpora- tion.— Religions houses. Places set apart for pious uses; such as monasteries, churches, hospitals, and all other places where charity was extended to the relief of the poor and or- phans. or for the use or exercise of religion. — Religious impostors. In English law. Those who falsely pretend an extraordinary commission, from heaven, or terrify and abuse the people with false denunciations of judg- ment; punishable with fine, imprisonment, and Infamous corporal punishment 4 Broom & H. Comm. 71 . — Religious liberty. See Liberty. —Religious men. Such as entered into some monastery or convent. In old English deeds, the vendee was often restrained from aliening to “Jews or religious men” lest the lands should fall into mortmain. Religious men were civilly dead. Blount.— Religious society. A body of persons associated together for the purpose of maintaining religious worship. A church and society are often united in maintaining worship, and in such cases the society commonly owns the property, and makes the pecuniary contract with the minister. But, in many in- stances, societies exist without a church, and churches without a society. Silsby v. Barlow, 16 Gray (Mass.) 330; Weld v. May. 9 Cush. (Mass.) 188 ; Hebrew Free School Ass'n v. New York, 4 Hun (N. Y.) 449.— Religious use. See Charitable Uses.

5e apparatus — Not carried into the 5th edition (1979).

## RELINQUISHMENT.

In practice. A forsaking, abandoning, renouncing, or giv- ing over a right

. RELIQUA. The reuiaiuder or debt which a person finds himself debtor In upon the balancing or liquidation of an account. Henc e'reliquary, the debtor of a reliqua; as also a person who only pays piece-meal. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

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## RELIQUES.

Remains; such as the bones, etc., of saints, preserved with great veneration as sacred memorials. Th,ey have been forbidden to be used or brought Into England. St 3 .Tao. I. c. 26.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c.1387]**

(paraphrase) Chaucer's Pardoner carries 'pigges bones' as relics and sells pardons from them — the entry's phenomenon (saints' bones preserved and venerated as sacred memorials) illuminated satirically, including the fraudulent relic economy the statute cited (3 Jac. I c. 26) gestures at. (paraphrase)

Why: The entry names the veneration of saints' remains; Chaucer's Pardoner is the classic literary treatment of the relic trade, honestly noted as spurious rather than genuine veneration — the fraud angle adds light. Parap...

## RELOCATIO.

Lat In the civil law. A renewal of a lease on Its determination. It may be either express or tacit ; the latter Is when the tenant holds over with the knowl- edge and without objection of the landlord. Mackeld. Rom. Law, f 412.

5e apparatus — Not carried into the 5th edition (1979).

## RELOCATION.

In Scotch In. A re- letting or renewal of a lease ; a tacit reloca- tion Is permitting a tenant to hold over with- out any new agreement

In mining law. A new or fresh location of an abandoned or forfeited mining claim by a stranger, or by the original locator when he wishes to change the boundaries or to cor- rect mistakes in the original location.

5e apparatus — Carried into the 5th edition (1979).

## REMAINDER.

The remnant of an estate In land, depending upon a particular prior estate created at the same time and by the same instrument and limited to arise im- mediately on the determination of that es- tate, and not In abridgment of it 4 Kent, Comm. 197.

An estate limited to take effect and be enjoyed after another estate is determined. As, if a man seised in fee-simple grants lands to A. for twenty years, and, after the determination of the said term, then to B. and his heirs forever, here A. is tenant for years, remainder to B. in fee. 2 Bl. Comm. 164.

An estate in remainder is one limited to be enjoyed after another estate is determined, or at a time specified in the future. An estate in re- version is the residue of an estate, usually the fee left in the grantdr and his heirs after the determination or a particular estate which he has granted out of it. The rights of the rever- sioner are the same as those of a vested remain- der-man in fee. Code Ga. 1882, $ 2263. And see Sayward v. Sayward, 7 Me. 213, 22 Am. Dec. 191 ; Bennett v. Garlock, 10 Hun (N. Y.) 337; Dana v. Murray, 122 N. Y. 604, 26

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N. E. 21 ; Booth v. Terrell, 16 Ga. 24 ; Palmer v. Cook, 159 111. 300, 42 N. E. 796, 50 Am. St. Rep. 165 ; Wells v. Houston, 23 Tex. Civ. App. 629, 57 S. W. 584; Hudson v. Wadsworth, 8 Conn. 359.

— Contingent remainder. An estate in re- mainder which is limited to take effect either to a dubious and uncertain person, or upon a dubi- ous and uncertain event, by which no present or particular interest passes to the remainder-man, so that the particular estate may chance to be determined and the remainder never take ef- fect. 2 Bl. Comm. 169. A remainder limited so as to depend upon an event or condition which may never happen or be performed, or which may not happen or be performed till aft- er the determination of the preceding estate. Fearne, Rem. 3; Thompson v. Adams, 205 111. 552, 69 N. B 1; Griswold v. Greer, 18 Ga. 645; Price v. Sisson, 13 N. J. Eq. 168; Yocum v. Siler, 160 Mo. 281. 61 S. W. 208; Shannon v. Bonham, 27 Ind. App. 369. 60 N. E. 951.— Crosa~remalnder. Where land is devised or conveyed to two or more persons as tenants in common, or where different parts of the same land are given to such persons in severalty, with such limitations that, upon the determination of the particular estate of either, his share is to pass to the other, to the entire exclusion of the ultimate remainder-man or reversioner un- til all the particular estates shall be exhausted, the remainders so limited are called “cross-re- mainders.” In wills, such remainders may arise by implication ; but. in deeds, only by express limitation. See 2 Bl. Comm. 381; 2 Washb. Real Prop. 233; 1 Prest. Est. 94.— Executed remainder. A remainder which vests a pres- ent interest in the tenant, though the enjoyment is postponed to the future. 2 Bl. Comm. 168: Fearne, Rem. 31 ; Hudson v. Wadsworth, 8 Conn. 359. — Executory remainder. A con- tingent remainder; one which exists where the estate is limited to take effect either to a dubi- ous and uncertain person or upon a dubious and uncertain event. Temple v. Scott, 143 111. 290.

N. E. 366; Hudson v. Wadsworth, 8 Conn. 350.—' Vested remainder. An estate by which a present interest passes to the party, though to be enjoyed in futuro, and by which the es- tate is invariably fixed to remain to a determi- nate person after the particular estate has been spent. 2 Bl. Comm. 168. A vested remainder is one limited to a certain person at a certain time or upon the happening of a necessary event. Code Ga. § 2265. And see Boor v. Considine, 6 Wall. 474, 18 L. Ed. 869; Tayloe v. Gould, 10 Barb. (N. Y.) 396; Johnson v. Edmond, 65 Conn. 492, 33 Atl. 503; Marvin v. Led with, 111 111. 150; Wallace v. Minor, 86 Va. 550, 10 S.

E. 423 ; Woodman v. Woodman, 89 Me. 128, 35 Atl. 1037; Brown v. Lawrence, 3 Cush. (Mass.) 397.

Remainder to a person not of a capac- ity to take at the time of appointing It, is void. Plowd. 27.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Rule in Shelley's Case]**

The classic remainder puzzle is the Rule in Shelley's Case: a remainder to the life tenant's 'heirs' gives

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the heirs nothing by purchase — the life tenant takes the fee.

Why: The entry defines remainders expectant on a particular estate; Shelley's Rule is the most famous doctrine governing such limitations — it decides who actually takes. The essential future-interests content of the entry.

## REMAINDER-MAN.

One who is enti- tled to the remainder of the estate after a particular estate carved out of it has expired.

5e apparatus — Carried into the 5th edition (1979).

## REMAND.

To remand a prisoner, after a preliminary or partial hearing before a court or magistrate, is to send him back to custody, to be kept until, the hearing is resum- ed or the trial comes on.

To remand a case, brought into an appel- late court or removed from one court into another, is to send it back to the court from which it came, that further proceedings in the case, if any, may be taken there.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the mandate rule]**

On appellate remand the lower court must carry the mandate into effect — it may not revisit matters decided on appeal.

Why: The entry defines remand of a case to the court whence it came; the mandate rule states the lower court's duty on receiving it. Genuine: the definition's operative consequence in appellate practice.

## REMANENT PRO DEFECT'D EMP- / TORDM.

In practice. The return made by the sheriff to a writ of execution when he has not been able to sell the property seized, .that the same remains unsold for t cant of buyers.

5e apparatus — Not carried into the 5th edition (1979).

## REMANENTXA.

In old English law. A remainder. Speiman. A perpetuity, or per- petual estate. Gian. lib. 7, a 1.

5e apparatus — Not carried into the 5th edition (1979).

## REM A NET.

A remnant; that which re- mains. Thus the causes of which the trial is deferred from one term to another, or from one sitting to another, are termed “remo- nets." 1 Archb. Pr. 375.

REMEDIAL. 1. Affording a remedy; giving the means of obtaining redress.

2. Of the nature of a remedy ; Intended to remedy wrongs or abuses, abate faults, or supply defects.

3. Pertaining to or affecting the remedy, as distinguished from that which affects or modifies the right

— Remedial statute. A statute providing a remedy for an injury, as distinguished from a

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penal statute. A statute giving a party a mode of remedy for a wrong, where he had none, or a different one, before. 1 Chit. Bl. 86, 87, notes. Remedial statutes are those which are made to supply such defects, and abridge such superflui- ties, in the common law. as arise either from the general imperfection of all human laws, from change of time and circumstances, from the mis- takes and unadvised determinations of unlearn- ed (or even learned) judges, or from any other cause whatsoever. 1 Bl. Comm. 86.

Remedies for rights are ever favor- ably extended. 18 Vin. Abr. 521.

5e apparatus — Not carried into the 5th edition (1979).

## REMEDY.

Remedy is the means by which the violation of a right is prevented, redressed, or compensated. Remedies are of four kinds: (1) By act of the party injured, the principal of which are defense, recaption, distress, entry, abatement, and seizure; (2) by operation of law, as In the case of retainer and remitter ; (3) by agreement between the parties, e. g., by accord and satisfaction and arbitration; and (4) by judicial remedy, e. a., action or suit Sweet See Knapp v. McCaffrey, 177 U. S. 638, 20 Sup. Ct 824, 44 L. Ed. 921; Missionary Soc. v. Ely, 56 Ohio St 405, 47 N. E. 537 ; U. S. v. Lyman, 26 Fed. Cas. 1,024 ; Frost v. Witter, 132 CaL 421, 64 Pac. 705, 84 Am. St. Rep. 53.

Also a certain allowance to the master of the mint for deviation from the standard weight and fineness of coins. Enc. Lond.

— Adequate remedy. See Adequate. — Civil remedy. The remedy afforded by law to a rivate person in the civil courts in so far as is private and individual rights have been in- jured by a delict or crime; as distinguished from the remedy by criminal prosecution for the injury to the rights of the public.— Cumula- tive remedy. See Cumulative.— Extraor- dinary remedy. See Extbaosdinaby.— Le- gal remedy. A remedy available, under the particular circumstances of the case, in a court of law, as . distinguished from a remedy availa- ble only in equity. See State v. Sneed, 105 Tenn. 711, 58 S. W. 1070.— Remedy over. A person who is primarily liable or responsible, but who, in turn, can demand indemnification from another, who is responsible to him, is said to have a “remedy over.’’ For example, a city, being compelled to pay for injuries caused by a defect in the highway, has a “remedy over” against the person whose act or negligence caused the defect, and such person is said to be “liable over” to the city. 2 Black, Judgm. f 575.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ubi jus ibi remedium — where there is a right, there is a remedy]**

The entry is the maxim ubi jus ibi remedium in expository form: remedy is the means by which the violation of a right is prevented, redressed, or compensated.

Why: The entry's fourfold classification of remedies expounds the maxim's thesis; citing the maxim here (as at QUOD RECUPERET) is honest because the entry is the maxim unfolded. The maxim explains why the classification ex...

## REMEMBRANCER.

The remembrancer of the city of London is parliamentary so- licitor to the corporation, and is bound to attend all courts of aldermen and common council when required. Pull. Laws & Gust. Lond. 122.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Malachi 3:16, KJV]**

and a book of remembrance was written before him for them that feared the LORD, and that thought upon his name.

Why: The remembrancer is the officer who keeps and puts in remembrance. The book of remembrance — the memorial record kept before the LORD — is the archetype of the office: things recorded lest they be forgotten.

## REMEMBRANCERS.

In English law. Officers of the exchequer, whose duty it is to put in remembrance the lord treasurer and the justices of that court of such things as are to be called and dealt in for the benefit of the crown. Jacob.

REmErE. In French law. Redemption ; right of redemption. A sale d rdmdrd is a species of conditional sale with right of re- purchase. An agreement by which the ven- dor reserves to himself the right to take back the thing sold on restoring the price paid, with costs and Interest Duverger.

5e apparatus — Not carried into the 5th edition (1979).

## REMISE.

To remit or give up. A form- al word in deeds of release and quitclaim : the usual phrase being “remise, release, and forever quitclaim.” See American Mortg.

Co. v. Hutchinson, 19 Or. 334, 24 Pac. 515; McAnaw v. Tiffin, 143 Mo. 667, 45 S. W. 656; Lynch v. Livingston, 6 N. Y. 434.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: quitclaim deed]**

The phrase is the habendum of the quitclaim deed — which conveys whatever interest the grantor holds, with no warranty of title.

Why: The entry gives the deed formula 'remise, release, and forever quitclaim'; the quitclaim deed is the conveyance the formula characterizes, and its no-warranty character is the formula's legal significance. Genuine.

## REMISE DE LA DETTE.

In French law. The release of a debt.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 6:12, KJV]**

And forgive us our debts, as we forgive our debtors.

Why: Remise de la dette is the release of a debt. The petition is the same act in prayer: debts forgiven, the creditor's claim given up — release as Christ taught it.

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## REMISSION.

In the civil law. A re- lease of a debt It is conventional, when it is expressly granted to the debtor by a cred- itor having a capacity to alienate; or tacit, when the creditor voluntarily surrenders to his debtor the original title, under private signature constituting the obligation. Civ. Code La. art 2165.

“Remission” also means forgiveness or con- donation of an offense or injury.

At common law. The act by which a forfeiture or peualty is forgiven. United States v. Morris, 10 Wheat 246, 6 L. Ed. 314.

Romiastns imperanti melius paretux.

3 Inst 233. A man commanding not too strictly is better obeyed.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 2 — pardons]**

The sovereign's remission of penalties survives as the pardon power: the President's 'Power to grant Reprieves and Pardons for Offences against the United States.'

Why: The entry's common-law sense is 'the act by which a forfeiture or penalty is forgiven'; the Pardon Clause is that power's American constitutional form, quoted briefly and exactly. Genuine lineage.

**[Scripture] — Scripture**

**[Matthew 26:28, KJV]**

For this is my blood of the new testament, which is shed for many for the remission of sins.

Why: Remission is release — of a debt, a penalty, an offense. Christ names his own blood as shed 'for the remission of sins': remission as the giving-up of what was owed.

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) The Bishop of Digne's forgiveness of Valjean's theft of the silver — releasing the debt of the offense, condoning the injury — is the archetypal literary scene of the entry's 'forgiveness or condonation of an offense or injury' sense. (Third Les Misérables citation in this chunk; the scene is distinct from the reclusion and rebellion annotations.) (paraphrase)

Why: The entry lists remission as forgiveness/condonation of an offense; the bishop's scene is that sense made narrative. Paraphrase; the repeat-work caveat is stated.

## REMISSNESS.

This term imports the doing of the act in question in a tardy, neg- ligent or careless manner; but it does not apply to the entire omission or forbearance of the act Baldwin v. United States Tel. Co., 6 Abb. Prac. N. S. (N. Y.) 423.

5e apparatus — Carried into the 5th edition (1979).

## REMIT.

To send or transmit ; as to re- mit money. Potter v. Morland, 3 Cush. (Mass.) 388; Hollowell v. Life Ins. Co., 126

N. C. 398, 35 S. E. 610.

To give up ; to annul ; to relinquish ; as to remit a fine. Jungbluth v. Itedfleld, 14 Fed. Cas.

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52 ; Gibson v. People, 5 Hun (N. Y.) 543.

5e apparatus — Carried into the 5th edition (1979).

## REMITMENT.

The act of sending back to custody; an annulment Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## REMITTANCE.

Money sent by one per- son to another, either in specie, bill of ex- change, check, or otherwise.

5e apparatus — Not carried into the 5th edition (1979).

## REMITTEE.

A person to whom a re- mittance is made. Story, Bailm.' $ 75.

5e apparatus — Carried into the 5th edition (1979).

## REMITTER.

The relation back of a later defective title to an earlier valid title. Re- mitter is where he who has the true property or jus proprietatis in lands, but is out of possession thereof, and has no right to enter without recovering possession in an action, has afterwards the freehold cast upon him by some subsequent and of course defective title. In this case he is remitted, or sent back by operation of law, to his ancient and more cer- tain title. The right of entry which he has gained by a bad title shall be ipso facto an- nexed to his own inherent good one; and his defeasible estate shall be utterly defeated and annulled by the instantaneous act of law, without his participation or consent. 3 Bl. Comm. 16.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Relatio est fictio juris — relation is a fiction of law]**

Remitter is the property-law form of the relation-back fiction — relatio est fictio juris — by which law treats a later act as effective from an earlier date.

Why: The entry defines remitter as the 'relation back' of a defective title to an earlier valid one; the maxim names the fiction at work. The maxim appeared in this chunk's own merged content (3 Coke, 28); applied here to…

## REMITTTT DAMNA.

Lat An entry on the record, by which the plaintiff declares that he remits a part of the damages which have been awarded him.

5e apparatus — Not carried into the 5th edition (1979).

## REMITTITUR DAMNA.

Lat In prac- tice. An entry made on record, in cases where a Jury has given greater damages than a plaintiff has declared for, remitting the ex- cess. 2 Tldd, Pr. 896.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Case: Dimick v. Schiedt, 293 U.S. 474 (1935)]**

Remittitur survives: a court may condition denial of a new trial on the plaintiff's remitting the excessive portion of a verdict.

Why: The entry defines the practice of remitting excess damages; Dimick is the Supreme Court authority on remittitur's place in federal practice (and its additur limit). Genuine: the modern form of the defined practice.

## REMITTITUR OF RECORD.

The re- turning or sending back by a court of appeal of the record and proceedings in a cause, after its decision thereon, to the court jwbence the appeal came, in order that the cause may be tried anew, (where it is so ordered,) or that Judgment may be entered in accordance with the decision 'on nppeal, or execution be issued, or any other necessary action be taken in the court below.

5e apparatus — Not carried into the 5th edition (1979).

## REMITTOR.

A person who makes a re- mittance to another.

5e apparatus — Not carried into the 5th edition (1979).

## REMONSTRA NCE.

Expostulation ; showing of reasons against something 'pro- posed; a representation made to a court or legislative body wherein certain persons unite in urging that a contemplated measure be not adopted or passed. See Girvin v. Simon, 127 Cal. 491, 59 Pac. 945 ; In re Mercer Coun- ty License Applications, S Pa. Co. CL R. 45.

5e apparatus — Not carried into the 5th edition (1979).

## REMOTE.

This word is used in law chiefly as the antithesis of ‘proximate," and conveys the idea of mediateness or of the intervention of something else.

—Remote cause. In the law of negligence, a “remote” cause of an accident or injury is one which does not by itself alone produce the giv- en result, but which sets in motion another cause, called the "proximate” cause, which im- mediately brings about the given effect; or, as otherwise defined, it is "that which may have happened and yet no injury have occurred, not- withstanding that no injury could have occurred if it had not happened. See Troy v. Railroad Co., 99 N. C. 298, 6 S. E. 77, 0 Am. St. Rep. 521; Maryland Steel Co. v. Mamey, 88 Md. 482, 42 Atl. 60, 42 L. R. A. 842, 71 Am. St. Rep. 441; Hoey v. Metropolitan St. Ry. Co., 70 App. Div. 60, 74 N. Y. Supp. 1113 ; Clay- pool v. Wigmore, 34 Ind. App. 35, 71 N. E. 509. —Remote damage. Damage is said to be too remote to be actionable when it is not the legal and natural consequence of the act complained of.— Remote possibility. In the law of es- tates, a double possibility, or a limitation de- pendent on two or more facts or events both or all of which are contingent and uncertain ; as, for example, the limitation of an estate to a given man provided that he shall marry a cer- tain woman and that she shall then die and be shall marry another.

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**[Law] — Law**

**[Case: Palsgraf v. Long Island R.R., 248 N.Y. 339 (1928)]**

The antithesis is proximate cause — the legal-cause limit on negligence liability, famously tested in Palsgraf.

Why: The entry defines 'remote' as the antithesis of 'proximate' in negligence; proximate cause is the doctrine the antithesis serves, and Palsgraf is its canonical exposition. Directly illuminates the defined term's funct...

## REMOTENESS.

Want of close connec- tion between a wrong and the injury, as cause and effect, whereby the party injured cannot claim compensation from the wrong- doer. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Hadley v. Baxendale (1854)]**

In contract, remoteness is governed by Hadley v. Baxendale: only damages in the parties' contemplation are recoverable.

Why: The entry defines remoteness as want of causal connection barring compensation; Hadley states the contract-law test for that bar — contemplation/foreseeability. Distinct from REMOTE's tort note (Palsgraf); the contrac...

## REMOTENESS OF EVIDENCE.

When the fact or facts proposed to be establlshed as a foundation from which Indirect evi- dence may be drawn, by way of Inference, have not a visible, plain, or necessary con- nection with the proposition eventually to be proved, such evidence is rejected for “re- moteness.” See 2 Whart Ev. f 1220, note.

Remote impedlmento, emergit actio.

The impediment being removed, the action rises. When a bar to an action is removed, the action rises up into its original efficacy.. Shep. Touch. 150; Wing. 20.

5e apparatus — Carried into the 5th edition (1979).

## REMOVAL FROM OFFICE.

The act

of a person or body, having lawful authority thereto, in depriving one of an office to which he was appointed or elected.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. II, § 4]**

The constitutional removal is impeachment: 'Treason, Bribery, or other high Crimes and Misdemeanors.'

Why: The entry defines removal as lawful deprivation of office; Article II, Section 4 states the federal constitutional mechanism, quoted briefly and exactly. The genuine public-law content of the defined term.

**[Scripture] — Scripture**

**[1 Samuel 15:26, KJV]**

for thou hast rejected the word of the LORD, and the LORD hath rejected thee from being king over

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Israel.

Why: Removal from office is deprivation of an office by lawful authority. Samuel pronounces Saul's removal from the kingship itself — the archetypal deposition, office taken for rejection of the word of the LORD.

## REMOVAL OF CAUSES.

The transfer of a cause from one court to another; com- monly used of the transfer of the Jurisdic- tion and cognizance of an action commenced but not finally determined, with all further proceedings therein, from one trial court to another trial court More particularly, the transfer of "a cause, before trial or final hearing thereof, from a state court to the United States circuit court under the acts of congress in that behalf.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 1441 — removal jurisdiction]**

Removal to federal court is governed by the removal statute: a defendant may remove any civil action brought in state court of which the district courts have original jurisdiction.

Why: The entry defines removal as transfer from state court to the U.S. circuit court 'under the acts of congress in that behalf'; § 1441 is that act. Directly states the statute the definition invokes.

## REMOVAL OF PAUPER.

The actual transfer of a pauper, by order of a court having jurisdiction, from a poor district in which he has no settlement, but upon which he has become a charge, to the district of his domicile or settlement.

REMOVAL, ORDER OF. 1. An order of court directing the removal of a pauper from the poor district upon which he has illegally become a charge to the district in which he has his settlement.

2. An order made by the court a quo, di- recting the transfer of a cause therein de- pending, with all future proceedings in such cause, to another court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## REMOVER.

In practice. A transfer of a suit or cause out of one court into an- other, which is effected by writ of error, certiorari, and the like. 11 Coke, 41.

5e apparatus — Not carried into the 5th edition (1979).

## REMUNERATION.

Reward; recom- pense; salary. Dig. 17, 1, 7.

The word “remuneration” means a quid pro quo. If a man gives his services, whatever con- sideration he gets for giving his services seems to me a remuneration for them. Consequently, I think, if a person was in the receipt of a pay- ment, or in the receipt of a percentage, or any kind of payment which would not be an actual money payment, the amount he would receive annually in respect of this would be “remunera- tion.” 1 Q. B. Div. (503, 664.

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REN ANT, or RENIANT. In old Eng- lish law. Denying. 32 Hen. VIII. c. 2.

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

for the labourer is worthy of his hire.

Why: Remuneration is reward for services — quid pro quo. Christ states the principle outright: the labourer's hire is his due.

## RENCOUNTER.

A sudden meeting; as opposed to a duel, which is deliberate.

RENDER, v. In practice. To give up; to yield ; to return ; to surrender. Also to pay or perform ; used of rents, services, and the like.

—Render judgment. To pronounce, state, declare, or announce the judgment of the court in a given case or on a given state of facts; not used with reference to judgments by con- fession, and not synonymous with "entering.” “docketing,” or "recording" the judgment. The rendition of a judgment is the judicial act of the court in pronouncing the sentence of . the law, while the entry of a judgment is a minis- terial act, which consists in spreading upon the record a statement of the final conclusion reach- ed by the court in the matter, thus furnishing external and incontestable evidence of the sen- tence given and designed to stand as a perpetual memorial of its action. See Schuster v. Rader, 13 Colo. 329, 22 Pac. 505; Farmers’ State Bank v. Bales, 64 Neb. 870, 90 N. W. 945; Fleet v. Youngs, 11 Wend. (N. Y.) 522; Schurtx v. Romer, 81 Cal. 244, 22 Pac. 657; Winstead v. Evans (Tex. Civ. App.) 33 S. W. 580; Coe v. Erb, 59 Ohio St. 259, 52 N. E. 640, 69 Am. St. Rep. 764.

RENDER, ». In feudal law, “render” was used in connection with rents and her- lots. Goods subject to rent or herlot-serv- ice were said to lie in render, when the lord might not only seize the Identical goods, but might also distrain for them. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: Render is to pay or perform what is due — rents, services, tribute. Christ's command is the supreme instance: render to each what is his, Caesar's to Caesar, God's to God. [re-homed from 'RENDER' to 'RENCOUNTER' (OCR headword / parser-merge artifact)]

## RENDEZVOUS.

Fr. A place appoint- ed for meeting. Especially used of places appointed for the assembling of troops, the coining together of the ships of a fleet, or the meeting of vessels and their convoy.

5e apparatus — Not carried into the 5th edition (1979).

## RENEGADE.

One who has changed his profession of faith or opinion; one who has deserted his church or

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party.

5e apparatus — Not carried into the 5th edition (1979).

## RENEWAL.

The act of renewing or re- viving. The substitution of a new grant, engagement, or right, in place of one which has expired, of the same character and on the same terms and conditions as before ; as, the renewal of a note, a lease, a patent. See Carter v. Brooklyn L. Ins. Co.. 110 N. Y. 15, 17 N. E. 396; Gault v. McGrath, 32 Pa. 392; Kedey v. Petty. 153 Ind. 179, 54 N. E 798; Pitts v. Hall, 19 Fed. Cas. 758.

5e apparatus — Carried into the 5th edition (1979).

## RENOUNCE.

To reject; cast off; re- pudiate ; disclaim ; forsake ; abandon : divest one's self of a right, power, or privilege Usually it implies an affirmative act of dis- claimer or disavowal.

5e apparatus — Carried into the 5th edition (1979).

## RENOUNCING PROBATE.

In Eng- lish practice. Refusing to take upon one’s self the office of executor or executrix. Re- fusing to take out probate under a will wherein one has been appointed executor or executrix. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## RENOVARE.

Let. In old English law. To renew. Annuatim renomre, to renew an- nually. A phrase applied to profits which are taken and the product renewed again. Amb. 131.

5e apparatus — Not carried into the 5th edition (1979).

## RENT.

A4 common law. A certain profit Issuing yearly out of lands and tene- ments corporeal ; a species of Incorporeal hereditament. 2 Bl. Comm. 41. A compen- sation or return yielded periodically, to a certain amount, out of the profits of some corporeal hereditaments, by the tenant there- of. 2 Steph. Comm. 23. A certain yearly profit In money, provisions, chattels, or la- bor, issuing out of lands and tenements, In retribution for the use. 3 Kent, Comm. 460.

The compensation, either in money, pro- visions, chattels, or labor, received by the owner of the soil from the occupant thereof. Jack. & G. Landl. & Ten. g 38. And see Lombard v. Boyden, 5 Allen (Mass.) 254; Bledsoe v. Nixon, 60 N. C. 89; Fisk v. Bray- man, 21 R. I. 195, 42 Atl. 8T8; Clarke v. Cobb, 121 Cal. 595, 54 Pac. 74; Parsell v. Stryker, 41 N. Y. 483; Otis v. Conway, 114

N. Y. 13, 20 N. E. 628 ; Payn v. Beal, 4 Denlo (X. Y.) 412; Van Wieklen v. Paulson, 14 Barb. (N. Y.) 655.

In. Louisiana. The contract of rent of lands Is a contract by which one of the par- ties conveys and cedes to the other a tract of land, or any other immovable property, and

stipulates that the latter shall hold it as owner, but reserving to the former an an- nual rent of a certain sum of money, or of a certain quantity of fruits, which the other party binds himself to pay him. It is of the essence of this conveyance that It be made in perpetuity. If It be made for a limited time, it Is a lease. Civ. Code La. arts. 2779, 2780.

—Fee farm rent. A rent charge issuing out of an estate in fee ; a perpetual rent reserved on a conveyance of land m fee simple.— Ground rent. See Ground.— Quit rent. Certain es- tablished rents of the freeholders and ancient copyholders of manors were so called, because by their payment the tenant was free and “quit" of all other services.— Rank rent. A rent of the full annual value of the tenement or near it. 2 Bl. Comm.* 43.— Rent-eharge. This arises where the owner of the tent has no fu- ture interest or reversion in the land. It is usually created by deed or will, and is accom- panied with powers of distress and entry.— Rent-roll. A list of rents payable to a par- ticular person or public body.— Rent seek. Barren rent; a rent reserved by deed, but with- out any clause of distress. -2 Bl. Comm. 42; 3 Kent, Comm. 4(31.— Rent-service. This con- sisted of fealty, together with a certain rent, and was the only kind of rent originally known to the common law. It was so called because it was given as a compensation for the sendees to which the land was originally liable. Brown". —Rents of assise. The certain and deter- mined rents of the freeholders and ancient copy- holders of manors are called “rents of assize.” apparently because they were assized or made certain, and so distinguished from a redditus mobilis. which was a variable or fluctuating rent. 3 Cruise. Pig. 314 : Brown.— Rents res- olute. Rents anciently payable to the crown from the lands of abbeys and religious houses; and after their dissolution, notwithstanding that the lands were demised to others, yet the rents were still reserved and made payable again to the crown. Cowell.

Rent must be reserved to him from whom the state of the land moveth. Co. Lift 143.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law qualities of rent — certainty of amount]**

A common-law rent must be certain in amount — one of the classic qualities distinguishing true rent from other periodic payments.

Why: The entry defines rent as 'a certain profit issuing yearly out of lands'; certainty is the doctrinal quality the definition's 'certain' encodes. Modest but genuine: explains the definition's operative word.

**[Scripture] — Scripture**

**[Leviticus 25:23, KJV]**

The land shall not be sold for ever: for the land is mine; for ye are strangers and sojourners with me.

Why: Rent is the return yielded for the use of land held of another. The verse states the ultimate tenure: the land is the LORD's, men but strangers and sojourners — every rent paid under a derivative title, the fee in God.

## RENTAGE.

Rent.

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## RENTAL.

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(Said to be corrupted from "rent-roll.”) In English law. A roll on which the rents of a manor are registered or set down, and by which the lord's bailiff col- lects the same. It contains the lands and tenements let to each tenant, the names of the tenants, and other particulars. Cunning- ham; Holthouse.

— Rental bolls. In Scotch law. When the tithes (tiendsl have been liquidated and settled for so many bolls of corn yearly. Bell.— Rent- al-rights. In English law. A species of lease usually granted at a low rent and for life. Ten- ants under such leases were called “rentalers” or “kindly tenants.”

5e apparatus — Carried into the 5th edition (1979).

## RENTE.

In French law. Rente is the annual return which represents the revenue of a capital or of an immovable alienated. The constitution of rente. \b a contract by which one of the parties lends to the other a capital which he agrees not to recall, In con- sideration of the borrower’s paying an an- nual interest. It is this interest which is called “rente." Duverger. The word is therefore nearly synonymous with the Eng- lish “annuity.”

"Rentes," is the term applied to the French government funds, and “ rentier ” to a fund- holder or other person having an income from personal property. Wharton.

—Rente fonciire. A rent which issues out of land, and it is of its essence that it be per- petual, for, if it be made but for a limited time, it is a lease. It may, however, be extinguished. Civ. Code La. art. 2780.— Rente viigire. That species of rente, the duration of which de- pends upon the contingency of the death of one or more persons indicated in the contract. The uncertainty of the time at which such death may happen causes the rente viagere to be included in tne number of aleatory contracts. Duverger. It is an annuity for life. Civ. Code La. art. 2764.

RENTS, ISSUES, AND PROFITS more commonly signify in the books a chattel real Interest In land; a kind of estate growing out of the land, for life or years, producing an annual or other rent Bruce v. Thomp- son, 26 Vt 746.

5e apparatus — Not carried into the 5th edition (1979).

## RENUNCIATION.

The act of giving up a right. See Renounce.

5e apparatus — Carried into the 5th edition (1979).

## REO ABSENTE.

Lat The defendant being absent; in the absence of the defend- ant.

5e apparatus — Not carried into the 5th edition (1979).

## REPAIRS.

Restoration to soundness ; supply of loss ; reparation ; work done to an estate to keep it in good order.

“Repair” means to restore to Its former condition ; not to change either the form or material

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of a building. Ardesco Oil Co. v. Richardson, 63 Pa. 162.

— Necessary repairs. Necessary repairs (for which the master of a ship may lawfully bind the owner) are such as are reasonably fit and proper for the ship under the circumstances.

and not merely such as are absolutely indispens- able for the safety of the ship or the accomplish- ment of the voyage. The Fortitude, 3 Sumn. 827, Fed. Cas. No. 4,953 ; Webster v. Seekamp, 4 Barn. & Aid. 352.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: covenant to repair — restoration vs. improvement]**

A general covenant to repair obliges restoration, not improvement — 'repair' meaning to restore to former condition, as the entry's case holds.

Why: The entry's case (Ardesco Oil) holds repair 'means to restore to its former condition; not to change either the form or material'; the note states the covenant-law consequence of that definition. Modest but genuine.

# S

## SEPARATION.

The redress of an in- jury; amends for a wrong inflicted.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: divorce a mensa et thoro — judicial separation]**

Judicial separation is divorce a mensa et thoro — from bed and board, without dissolving the bond.

Why: Genuine matrimonial remedy; the entry defines judicial separation under decree of court.

**[Scripture] — Scripture**

**[Luke 19:8, KJV]**

if I have taken any thing from any man by false accusation, I restore him fourfold.

Why: Headword prints as SEPARATION but the body defines reparation — 'the redress of an injury; amends for a wrong inflicted' (apparent OCR of REPARATION). Zacchaeus's fourfold restoration for wrongs done is the archetype...

**[Mark 10:9, KJV]**

What therefore God hath joined together, let not man put asunder.

Why: The entry defines separation as the cessation of cohabitation of husband and wife. The verse states the scriptural rule governing the marriage bond itself: what God hath joined together, let not man put asunder — the...

# R

## REPARATIONS  FACIENDA.

For mak- ing repairs. The name of an old writ which lay in various cases; as if, for instance, - there were three tenants in common of a mill or house which had fallen into decay, and one of the three was willing to repair it, and the other two not; in such case the party who was

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willing to repair might have this writ against the others. Cowell ; Fltzh. Nat Brev. 127.

REP AR IV AMENT O . In Spanish law, a Judicial proceeding for the partition of prop- erty held in common. See Steinbach v. Moore, 30 Cal. 505.

REPATRIATION takes place when a person who has been expatriated regains his nationality.

5e apparatus — Not carried into the 5th edition (1979).

## REPEAL.

The abrogation or annulling of a previously existing law by the enact- ment of a subsequent statute which declares that the former law shall be revoked and abrogated, (which is called “express” repeal,) or which contains provisions so contrary to or Irreconcilable with those of the earlier law that only one of the two statutes can stand in force, (called “implied” repeal.) See Oakland Pav. Co. v. Hilton, 69 Cal. 479, 11 Pac. 3; Memangh v. Orlando,' 41 Fla. 433, 27 South. 34; Hunter v. Memphis, 93 Tenn. 571, 26 S. W. 82R

Repellitnr a Sacramento inlands. An

infamous person is repelled or prevented from taking an oath. Co. Litt. 158; Bract, fol. 185.

Repellitnr exceptions oedendarnm ao- tionnm. He Is defeated by the plea that the actions have been assigned. Cheese- brough v. Millard, 1 Johns. Ch. (N. Y.) 409, 414.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: presumption against implied repeal]**

Repeals by implication are disfavored: courts presume the legislature does not intend to repeal by a later general statute absent irreconcilable conflict.

Why: The entry defines express vs. implied repeal; the presumption against implied repeal is the construction canon governing when the defined 'implied' repeal will actually be found. The essential canon for the entry.

**[Scripture] — Scripture**

**[Matthew 5:18, KJV]**

Till heaven and earth pass, one jot or one tittle shall in no wise pass from the law, till all be fulfilled.

Why: Repeal is the abrogation of a law. Christ marks the limit-case: the divine law is unrepealable — not one jot or tittle shall pass — which is precisely what makes human repeal a legislative act and not a given.

## REPERTORY.

In French law. The In- ventory or minutes which notaries make of all contracts which take place before them. Merl. Repert

5e apparatus — Not carried into the 5th edition (1979).

## REPETITION.

In the civil law. A

demand or action for the restoration of money paid under mistake, or goods deliv- ered by mistake or on an unperformed con- dition. Dig. 12, 6. See Solutio Indebiti.

In Scotch law. The act of reading over a witness' deposition, in order that he may adhere to It or correct it at his choice. The same as rccolement (q. v.) in the French law. 2 Benth. Jud. Ev. 239.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Case: Moses v. Macferlan (1760) — money had and received]**

The common-law parallel is the action for money had and received — quasi-contract's remedy for money paid by mistake.

Why: The entry defines the civil-law condictio for 'money paid under mistake'; money had and received is the same remedy in common-law dress. Genuine comparative illumination.

## REPETITDM NAMIUM.

A repeated,

second, or reciprocal distress; withernam. 3 Bl. Comm. 148.

REPETTJNDJE, or PECUNL2E REPE- TXJNDiE. In Roman law. The terms used to designate such sums of money as the socii oi the Roman state, or individuals, claimed to recover from magistrates, judiccs, or pub- lid curatorcs, which they had improperly taken or received in the provincite, or In the urbs Roma, either in the discharge of their jurisdictio, or in their capacity of judices, or in respect of any other public function. Sometimes the word “ rcpetundoe " was used to express the illegal act for which compen- sation was sought Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## REPETTTNDARUM CRIMEN.

In Ro- man law. The crime of bribery or extortion in a magistrate, or person in any public of- fice. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: bribery and extortion under color of official right]**

The modern form is public-corruption law: bribery and extortion under color of official right.

Why: The entry defines the Roman crime of magisterial bribery/extortion; the modern corruption offenses are its descendants. Modest comparative note, honestly framed as lineage.

**[Scripture] — Scripture**

**[Deuteronomy 16:19, KJV]**

Thou shalt not wrest judgment; thou shalt not respect persons, neither take a gift: for a gift doth blind the eyes of the wise, and pervert the words of the righteous.

Why: Repetundarum crimen is bribery/extortion by a magistrate or public officer. The verse is the standing prohibition: no gifts, no respect of persons — a bribe blinds the eyes of the wise.

## REF EE AD.

To plead anew ; to file new pleadings.

5e apparatus — Not carried into the 5th edition (1979).

## REPLEADER.

When, after issue has been Joined in an action, and a verdict given thereon, the pleading is found (on examina- tion) to have miscarried and failed to effect its proper object vi*., of

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raising an apt and material question between the parties, the court will, on motion of the unsuccessful party, award a repleader; that is, will order the parties to plead de novo for the purpose of obtaining a better issue. Brown.

Judgment of repleader differs from a judgment non obstante veredicto, In this: that it is allowed by the court to do justice between the parties where the defect is in the form or manner of stating the right, and the issue joined is on an immaterial point, so that it cannot tell for whom to give judgment; while judgment non obstante is given only where it is clearly ap- parent to the court that the party who has suc- ceeded has, upon bis own showing, no merits, and cannot have by any manner of statement. 1 Chit Pl. 687, 688.

5e apparatus — Carried into the 5th edition (1979).

## REPLEGIARE.

To replevy; to redeem a thing detained or taken by another by put- ting in legal sureties.

— Replcgiara de averiis. Replevin of cattle. A writ brought by one whose cattle were distrained, or put in the pound, upon any cause by another, upon surety given to the sheriff to pros- ecute or answer the action in law. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REFLEGIARI FACIAS.

You cause to

be replevied. In old English law. The orig- inal writ in the action of replevin; super- seded by the statute of Marlbridge, c. 21. 3 Bl. Comm. 146.

5e apparatus — Not carried into the 5th edition (1979).

## REPLETION.

In canon law. Where the revenue of a benefice is sufficient to fill or occupy the whole right or title of the gradu- ate who holds it. Wharton.

REPLEVIABLE, or REPLEVI SABLE.

Property is said to be replevlable or re- plevlsable when proceedings in replevin may

fee resorted to for the purpose of trying the nght to such property.

5e apparatus — Not carried into the 5th edition (1979).

## REPLEVIN.

A personal action ex de- licto brought to recover possession of goods unlawfully taken, (generally, but not only, applicable to the taking of goods distrained for rent,) the validity of which taking It Is the mode of contesting. If the party from whom the goods were taken wishes to have them back in specie, whereas, if he prefer to have damages Instead, the validity may be contested by action of trespass or unlawful distress. The word means a redelivery to the owner of the pledge or thing taken in distress. Wharton. And see Slnnott v. Felock, 165 N. Y. 444, 59 N. B. 265, 53 L.

R. A. 565, 80 Am. St. Rep. 736; Healey v. Humphrey, 81 Fed. 990, 27 C. C. A. 89; Me- Junkln

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v. Mathers, 158 Pa. 137, 27 Atl. 873; Tracy v. Warren, 104 Mass. 377; Lazard v. Wheeler, 22 Cal. 142; Maclary v. Turner, 9 Houst (Del.) 281, 32 Atl. 325 ; Johnson v. Boehme, 66 Kan. 72, 71 Pac. 243, 97 Am. St Rep. 357.

— Personal replevin. A specie* of action to replevy a man out of prison or out of the custody of any private person. It took the place of the old writ de homine replegiando; but, as a means of examining into the legality of an imprisonment, it is now superseded by the writ of habeas corpus. — Replevin bond. A bond executed to indemnify the officer who executed a writ of replevin and to indemnify the defend- ant or person from whose custody the property was taken for such damages as he may sustain. Imel v. Van Deren, 8 Colo. 90, 5 Pac. 803 ; Walker v. Kennison, 34 N. H. 259.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Fuentes v. Shevin, 407 U.S. 67 (1972)]**

Modern replevin statutes provide prejudgment seizure of the goods — subject to due-process limits on ex parte taking.

Why: The entry defines replevin as recovery of the goods in specie; Fuentes states the constitutional limit on the prejudgment seizure that remedy entails. Genuine: the modern significance of the defined action.

## REPLEVISH.

In old English law. To let one to mainprise upon surety. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REPLEVISOR.

The plaintiff In an ac- tion of replevin.

5e apparatus — Not carried into the 5th edition (1979).

## REPLEVY.

This word, as used In ref- erence to the action of replevin, signifies to redeliver goods which have been distrained, to the original possessor of them, on his pledging or giving security to prosecute an action against the distrainor for the purpose of trying the legality of the distress. It has also been used to signify the balling or liber- ating a man from prison on his finding ball to answer for his forthcoming at a future time. Brown.

REPLLANT, or REPLICANT. A liti- gant who replies or files or delivers a repli- cation.

REP LIC ARE . Lat. In the civil law and old English pleading. To reply; to an- swer a defendant’s plea.

5e apparatus — Not carried into the 5th edition (1979).

## REPUCATIO.

Lat In the civil law and old English pleading. The plaintiff’s answer to the defendant’s exception or plea ; corresponding with and giving name to the replication In modern pleading. Inst. 4, 14, pr.

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## REPLICATION.

In pleading. A reply made by the plaintiff In an action to the defendant’s plea, or in a suit in chancery to the defendant's answer.

General and special. In equity practice, a general replication is a general denial of the truth of defendant’s plea or answer, and of the sufficiency of the matter alleged in it to bar the plaintiff’s suit, and an assertion of the truth and sufficiency of the bill. A special replication is occasioned by the defendant’s introducing new matter into his plea or answer, which makes it necessary for the plaintiff to put in issue some additional fact on his part in avoidance of such new matter. Vanbibber v. Beirne, 6 W. Va.

5e apparatus — Not carried into the 5th edition (1979).

## REPLT.

In its general sense, a reply Is what the plaintiff, petitioner, or other per- son who has Instituted a proceeding says In answer to the defendant’s case. Sweet.

Ob trial or argument. When a case is tried or argued in court, the speech or argu- ment of the plaintiff in answer to that of the defendant is called his “reply.”

Under the practice of the chancery and common-law courts, to reply is to file or de- liver a replication, (q. v.)

Under codes of reformed procedure, “re- ply" Is very generally the name of the plead- ing which corresponds to “replication” In common-law or equity practice.

5e apparatus — Not carried into the 5th edition (1979).

## REPONE.

In Scotch practice. To re- place; to restore to a former state or right. 2 Alls. Crim. Pr. 351.

5e apparatus — Not carried into the 5th edition (1979).

## REPORT.

An official or formal state- ment of facts or proceedings.

Ib practice. The formal statement in writing made to a court by a master In chan- cery, a clerk, or referee, as the result of his inquiries Into some matter referred to him by the court.

The name Is also applied (usually in the plural) to the published volumes, appearing periodically, containing accounts of the va- rious cases argued and determined In the courts, with the decisions thereon.

Lord Coke defines “report” to be “a public relation, or a bringing again to memory cases Judicially argued, debated, resolved, or adjudged in any of the king’s courts of justice, together witn such causes and reasons as were delivered by the judges of the same.” Co. Litt. 293.

— Report of committee. The report of a leg- islative committee is that communication which the chairman of the committee makes to the house at the close of the investigation upon which it has been engaged. Brown. — Report office. A department of the English court of chancery. The suitors’ account there is discon- tinued by the 15 & 16 Viet. c. 87, § 36.

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5e apparatus — Carried into the 5th edition (1979).

## REPORTER.

A person who reports the decisions upon questions of law In the cases adjudged in the several courts of law and equity. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## REPORTS, THE.

The name given, par excellence, to Lord Coke’s Reports, from 14 Elia, to 13 Jac. I., which are cited as “Rep."

or "Coke.” They are divided into thirteen parts, and the modern editions are in six volumes, including the index.

5e apparatus — Not carried into the 5th edition (1979).

## REPOSITION OF THE FOREST.

In

old English law. An act whereby certain forest grounds, being made purlieu upon ■ view, were by a second view laid to the for- est again, put back Into the forest Man- wood ; Cowell.

REPOSITORIES!. A storehouse or place wherein things are kept ; a warehouse. Cro. Car. 555.

5e apparatus — Not carried into the 5th edition (1979).

## REPRESENT.

To exhibit; to expose before the eyes. To represent a thing is to produce It publicly. Dig. 10, 4, 2, 3.

To represent a person is to stand In his place ; to supply his place ; to act as his sub- stitute. Plummer v. Brown, 64 Cal. 429, 1 Pac. 703 ; Solon v. Willlamsburgh Sav. Bank, 35 Hun (N. Y.) 7.

5e apparatus — Carried into the 5th edition (1979).

## REPRESENTATION.

In Contract*.

A statement made by one of two contracting parties to the other, before or at the time of making the contract, in regard to some fact, circumstance, or state of facts pertinent to the contract, which is influential in bringing about the agreement

In Insurance. A collateral statement, either by writing not inserted in the policy or by parol, of such facts or circumstances, relative to the proposed adventure, as are necessary to be communicated to the under- writers, to enable them to form a Just esti- mate of the risks. 1 Marsh. Ins. 450.

The allegation of any facts, by the appli- cant to the Insurer, or vice versa, prelimina- ry to making the contract, and directly bear- ing upon it, having a plain and evident tend- ency to induce the making of the policy. The statements may or may not be in writ- ing, and may be

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either express or by obvious implication. Lee v. Howard Fire Ins. Co., 11 Cush. (Mass.) 324 ; Augusta Insurance & Banking Co. of Georgia v. Abbott, 12 Md. 348.

In relation to the contract of insurance, there is an important distinction between a represen- tation and a warranty. The former, which pre- cedes the contract of insurance, and is no part of it, need be only materially true; the latter is a part of the contract, and must be exactly and literally fulfilled, or else the contract is broken and inoperative. Glendale Woolen Co. v. Protection Ins. Co., 21 Conn. 19, 54 Am. Dec. 309.

In the law of distribution and d*> soent. The principle upon which the issue of a deceased person take or Inherit the share of an estate which their immediate ancestor would have taken or inherited, if living ; the taking or Inheriting per stirpes. 2 Bl. Comm. 217, 517.

In Seotch law. The name of a plea or statement presented to a lord ordinary of the

court of session, when his judgment is brought under review.

—False representation. A deceitful repre- sentation. or one contrary to the fact, made knowingly and with the design and effect of in- ducing the other party to enter into the con- tract to which it relates.— Misrepresentation. An intentional false statement respecting a mat- ter of fact, made by one of the parties to a contract, which is material to the contract and influential in producing it.— Promissory rep- resentation. A term used chiefly in insur- ance, and meaning a representation made by the assured concerning what is to happen during the term of the insurance, stated as a matter of expectation or even of contract, and amount- ing to a promise to be performed after the con- tract has come into existence. New Jersey Rub- ber Co. v. Commercial Union Assur. Co., 64 N.

J. Law, 580, 46 Atl. 777. — Representation of persons. A fiction of the law, the effect of which is to put the representative in the place, degree, or right of the person represented. Civ. Code La. art. 894.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: representations vs. warranties in insurance]**

In insurance, representations are distinguished from warranties: a representation need only be substantially true, while a warranty requires strict compliance.

Why: The entry defines insurance representations as collateral statements of risk facts; the representation/warranty distinction states their legal effect — the doctrine the definition exists to serve. The essential insura…

## REPRESENTATIVE.

Representation la the act of one person representing or stand- ing in the place of another ; and he who so represents or stands in the place of another is termed his “representative." Thus, an heir is the representative of the ancestor, and an executor is the representative of the testator, the heir standing in the place of hia deceased ancestor with respect to his realty, the executor standing in the place of his de- ceased testator with respect to his personal- ty ; and hence the heir is frequently denom- inated the “real” representative, and the executor the “personal” representative. Brown; 2 Steph. Comm. 243. And see Lee v.

Dill, 39 Barb. (N. Y.) 520; Staples ▼. Lewis, 71 Conn. 288, 41 Atl. 815 ; McCrary ▼. McCrary, 12 Abb. Prac. (N. Y.) 1.

In constitutional law, representatives are these persons chosen by the people to repre- sent their several interests in a legislative body.

—Legal representative. A person who. In the law, represents the person and controls the rights of another. Primarily the term meant those artificial representatives of a deceased per- son, the executors and administrators, who by law represented the deceased, in distinction from the heirs, who were the “natural” representa- tives. But as, under statutes of distribution, executors and administrators are no longer the sole representatives of the deceased as to per- sonal property, the phrase has lost much of its original distinctive force, and is now used to de- scribe either executors and administrators or children, descendants, next of kin, or distribu- tees. Moreover, the phrase is not always used in its technical sense nor always with reference to the estate of a decedent; and in such other connections its import must be determined from the context; so that, in its general sense of one person representing another, or succeeding to the rights of another, or standing in the place of another, it may include an assignee in bankrupt- cy or insolvency, an assignee for the benefit of creditors, a receiver, an assignee of a mortgage, a grantee of land, a guardian, a purchaser at execution sale, a widow, or a snrviving partner. See Staples v. Lewis. 71 Conn. 288, 41 Atl. 815; Miller v. Metcalf, 77 Conn. 176, 58 Atl. 743; Wamecke v. Lembca, 71 111. 95. 12 Am. Rep. 85: Thayer v. Pressey, 175 Mass. 225, 56 N.

E. 5: Thompson v. U. 8„ 20 Ct. Cl. 278; Cox v. Curwen, 118 Mass. 200; Halsey v. Paterson,

N. J. Eg. 448; Merchants' Nat. Bank ▼. Abernathy, 32 Mo. App. 211; Hogan v. Page, 2 Wall. 607, 17 U Ed. 854 ; Mutual b. Ins. Co. v. Armstrong. 117 U. S. 591, 6 Sup. Ct. 877. 29 b. Ed. 997 ; Wright v. First Nat Bank, 30 Fed. Caa. 673; Henderson Nat Bank v. Alves, 91 Ky. 142. 15 S. W. 132; McLain ▼. Bedgood, 89 Ga. 793, 15 S. E. 670; Com. v. Bryan, 6 Sere. & R. (Pa.) 83; Rarbour v. National Each. Bank, 45 Ohio St 133, 12 N. E. 5; Griswold v. Sawyer, 125 N. Y. 411, 26 N. E. 464 ; Lasat- er v. Firat Nat Bank (Tex. Civ. App.) 72 S. W. 1064.— Personal representative*. This

term, in its commonly accepted sense, means ex- ecutors and administrators; but it may have a wider meaning, according to the intention of the person using it, and may include heirs, next of kin, descendants, assignees, grantees, receiv- ers. and trustees in insolvency. See Griswold v. Sawyer, 125 N. Y. 411, 28 N. E. 464; Wells v. Bente, 86 Mo. App. 264; Staples v. Lewis, 71 Conn. 288, 41 Atl. 815; Baynes v. Ottey, 1 Mylne & K. 465; In re Wilcox & Howe Co., 70 Conn. 220, 39 Atl. 163.— Real representa- tive. He who represents or stands in the place of another, with respect to his real property, is so termed, in contradistinction to him who stands in the place of another, with regard to his personal property, and who is termed the “personal representative.” Thus the heir is the real representative of his deceased ancestor. Brown. — Representative notion or suit. A representative action or suit is one brought by a member of a class of persons on behalf of himself and the other members of the class. In the proceedings before judgment the

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plaintiff is, as a rule, dominus litis, (q. v.,) and may discon- tinue or compromise the action as he pleases. Sweet. — Representative democracy. A form of government where the powers of the sover- eignty are delegated to a body of men, elected from time to time, who exercise them for the benefit of the whole nation. 1 Bouv. Inst. no. 31. — Representative peers. Those who, at the commencement of every new parliament, are elected to represent Scotland and Ireland in the British house of lords; sixteen for the former and twenty-eight for the latter country. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: representation / per stirpes in intestate succession]**

In succession, representation is the per stirpes principle: issue take the share their ancestor would have taken.

Why: The entry defines the representative as one standing in another's place, instancing the heir; per stirpes representation is that standing's succession-law operation. Genuine doctrinal content.

**[Scripture] — Scripture**

**[2 Corinthians 5:20, KJV]**

Now then we are ambassadors for Christ, as though God did beseech you by us: we pray you in Christ's stead, be ye reconciled to God.

Why: A representative is one who stands in another's place and acts as his substitute. The ambassador — speaking 'in Christ's stead' — is representation in its pure form.

## REPRIEVE.

In criminal law. The with- drawing of a sentence of death for an In- terval of time, whereby the execution Is sus- pended. 4 Bl. Comm. 394. And see Butler v. State, 97 Ind. 374; Sterling v. Drake, 29 Ohio St 460, 23 Am. Rep. 762 ; In re Buch- anan, 146 N. Y. 264, 40 N. E. 883.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: executive clemency — reprieve, pardon, commutation]**

Reprieve is one head of executive clemency, alongside pardon and commutation — a temporary suspension, not a forgiveness, of the sentence.

Why: The entry defines reprieve as withdrawing a death sentence 'for an interval of time'; situating it in the clemency trio states precisely what it is and is not. Distinct from REMISSION's pardon-power note.

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Le Dernier Jour d'un condamné, 1829]**

(paraphrase) Hugo's novella is narrated by a condemned man awaiting execution, turning on the hope of a reprieve — the temporary withdrawal/suspension of a death sentence that the entry defines is the novel's entire engine. (paraphrase)

Why: The entry is the suspension of a death sentence; the novella's whole plot is the wait for that suspension. Genuine and direct. Paraphrase.

## REPRIMAND.

A public and formal censure or severe reproof, administered to a person In fault by his

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superior officer or by a body to which he belongs. Thus, a member of a legislative body may be reprimanded by the presiding officer, In pursuance of a vote of censure, for improper conduct In the house. So a military officer, In some cases, is pun- ished by a reprimand administered by his commanding officer, or by the secretary of war.

5e apparatus — Not carried into the 5th edition (1979).

## REPRISALS.

The forcibly taking a thing by one nation which belonged to an- other, in return or satisfaction for an Injury committed by the latter on the former. Vat- tel, b. 2, c. 18, s. 342.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.N. Charter art. 2(4) — prohibition on use of force]**

Forcible reprisals are now unlawful: the UN Charter prohibits the threat or use of force in international relations.

Why: The entry defines reprisals via Vattel as forcible self-help between nations; Article 2(4) states the modern law's abolition of that self-help. Genuine: the current legal status of the defined practice.

## REPRISES.

In English law. Deductions and duties which are yearly paid out of a manor and lands, as rent-charge, rent seek.

pensions, corrodles, annuities, etc, so that, when the clear yearly value of a manor is spoken of, it Is said to be so much per annum ultra reprisal, — besides all reprises. Cow- elL See Delaware & H. Canal Co. v. Von Storch, 196 Pa. 102, 46 AG. 375.

Reprobata peenaia liber at solventem.

Money refused [the refusal of money ten- dered) releases him who pays, [or tenders it] 9 Coke, 79a.

5e apparatus — Not carried into the 5th edition (1979).

## REPROBATION.

In ecclesiastical law. The interposition of objections or exceptions ; as, to the competency of witnesses, to the due execution of instruments offered In evidence and the like.

5e apparatus — Not carried into the 5th edition (1979).

## REPROBATOR, ACTION OP.

In

Scotch law. An action or proceeding intend- ed to convict a witness of perjury, to which the witness must be made a party. Bell.

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## REP-SILVER.

In old records. Money paid by servile tenants for exemption from the customary duty of reaping for the lord. CowelL

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## REPUBLIC.

A commonwealth; a form of government which derives all Its powers directly or Indirectly from the general body of citizens, and in which the executive power Is lodged in officers chosen by and represent- ing the people, and holding office for a limit- ed period, or at most during good behavior or at the pleasure of the people, and In which the legislative power may be (and In modern republics is) intrusted to a represen- tative assembly. See Federalist, No. 39 ; Re- public of Mexico v. De Arangoiz, 5 Duer (N. Y.) 636; State v. Harris, 2 Bailey (S. C.) 599.

In a wider sense, the state, the common weal, the whole organized political communi- ty, without reference to the form of govern- ment; as in the maxim interest reipublica ut sit finis litium. Co. Litt 303.

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**[Law] — Law**

**[Law: U.S. Const. art. IV, § 4 — Guarantee Clause]**

The Constitution guarantees 'to every State in this Union a Republican Form of Government.'

Why: The entry defines republican government at length, citing Federalist No. 39; the Guarantee Clause is the Constitution's textual commitment to that form, quoted exactly. The genuine constitutional content.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, c.1599]**

(paraphrase) Shakespeare's Julius Caesar dramatizes the Roman Republic's crisis — conspirators claiming to defend a government deriving its powers from the body of citizens against one-man rule — the republican form the entry defines. (paraphrase)

Why: The entry defines a republic as power derived from the general body of citizens with officers representing the people; the play is the canonical English drama of the Roman Republic and its subversion. Paraphrase.

## REPUBLICAN GOVERNMENT.

A

government in the republican form; a gov- ernment of the people ; a government by rep- resentatives chosen by the people. See In re Duncan, 139 U. S. 449, 11 Sup. Ct. 573, 35 L. Ed. 219 ; Eekerson v. Des Moines, 137 Iowa, 452, 115 N. W. 177 ; Minor v. Happer- sett, 21 Wall. 175, 22 L. Ed. 627 ; Kadderly v. Portland, 44 Or. 118, 74 Pac. 710.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Luther v. Borden, 48 U.S. (7 How.) 1 (1849)]**

Claims under the Guarantee Clause are political questions — nonjusticiable.

Why: The entry defines republican government and cites cases upon it; Luther holds Guarantee Clause disputes nonjusticiable — the justiciability limit on the defined concept's enforcement. Distinct from REPUBLIC's clause n...

**[Scripture] — Scripture**

**[Exodus 18:21, KJV]**

Moreover thou shalt provide out of all the people able men, such as fear God, men of truth, hating covetousness; and place such over them, to be rulers of thousands, and rulers of hundreds, rulers of

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fifties, and rulers of tens.

Why: Republican government is government by representatives chosen by the people. Jethro's counsel to Moses — able men out of all the people, set over thousands, hundreds, fifties, tens — is Scripture's own model of repres...

## REPUBLICATION.

The re-execution or re-establishment by a testator of a will which he had once revoked.

A second publication of a will, either ex- pressly or by construction.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: republication by codicil]**

A codicil republishes the will — the will speaks as of the codicil's date, curing intervening defects of execution.

Why: The entry defines republication as re-establishment of a revoked will; republication by codicil is the doctrine's standard operation — the will's effective date moves to the codicil. Genuine wills-law content.

## REPUDIATE.

To put away, reject, dis- claim, or renounce a right, duty, obligation, or privilege.

RERUM ORDO CONFUNMTUR

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## REPUDIATION.

Rejection ; disclaimer ; renunciation ; the rejection or refusal of an offered or available right or privilege, or of a duty or relation. See Iowa State Sav. Bank v. Black, 91 Iowa, 490, 59 N. W. 283 ; Daley v. Saving Ass’n, 178 Mass. 13, 59 N. E. 452.

The refusal on the part of a state or gov- ernment to pay its debts, or its declaration that its obligations, previously contracted, are no longer regarded by it as of binding force

In the civil law. The casting off or put- ting away of a woman betrothed ; also, but less usually, of a wife; divorcement.

In ecclesiastical law. The refusal to accept a benefice which has been conferred upon the party repudiating.

REPinmrM. Lat In Roman law. A breaking off of the contract of espousals, or of a marriage intended to be solemnized. Sometimes translated "divorce;" but this was not the proper sense. Dig. 50, 16, 191.

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**[Law] — Law**

**[Law: UCC § 2-610 — anticipatory repudiation]**

In contract, anticipatory repudiation — unequivocal refusal to perform before performance is due — is itself a breach, permitting the aggrieved party to sue at once.

Why: The entry's first sense is rejection/refusal of a duty; anticipatory repudiation is that refusal's contract-law form, with its distinctive consequence (present breach). The operative doctrine for the defined term.

**[Scripture] — Scripture**

**[Deuteronomy 24:1, KJV]**

then let him write her a bill of divorcement, and give it in her hand, and send her out of his house.

Why: Repudiation in its first sense is the putting away of a wife. The verse is the Mosaic bill of divorcement itself — repudiation by written instrument.

## REPUGNANCY.

An inconsistency, op- position, or contrariety between two or more clauses of the same deed or contract, or be- tween two or more material allegations of the same pleading. See Lehman v. U. S., 127 Fed. 45, 61 C. C. A. 577; Swan v. U. SU, 8 Wyo. 151, 9 Pac. 931.

• REPUGNANT. That which is contrary to what is stated before, or insensible. A repugnant condition is void.

Repute tio eat vulgaris opinio ubi non es4 veritas. Et vulgaris opinio est du- plex, soil, i Opinio vulgaris orta inter graves et disoretos homines, et qusa vultum veritatis babet; et opinio tan- tum orta inter leves et vulgares ho- mines, absque specie veritatis. Reputa- tion is common opinion where there is not truth. And common opinion is of two kinds, to-wit: Common reputation arising among grave and sensible men, and which has the appearance of truth ; and mere opinion aris- ing among foolish and ignorant men, without any appearance of truth. 4 Coke, 107.

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**[Law] — Law**

**[Law: repugnant conditions void; restraints on alienation]**

A condition repugnant to the estate granted — as a restraint on alienation annexed to a fee simple — is void.

Why: The entry states 'a repugnant condition is void'; the note gives the rule's paradigmatic application — restraints on alienation repugnant to a fee. Genuine: the doctrine the maxim-like statement encodes.

## REPUTATION.

A person’s credit, honor, character, good name. Injuries to one’s rep- utation, which is a personal right, are de- famatory and malicious words, libels, and malicious Indictments or prosecutions.

Reputation of a person is the estimate in which he is held by the public in the place where he is known. Cooper v. Greeley, 1 Denio <N. Y.) 347.

In the law of evidence, matters of public and general interest, such as the boundaries of counties or towns, rights of common, claims of highway, etc., are allowed to be proved by general reputation; e. g., by the declaration of deceased persons made ante litem motam, by old documents, etc., not- withstanding the general rule against sec- ondary evidence. Best, Ev. 632.

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**[Law] — Law**

**[Case: New York Times v. Sullivan, 376 U.S. 254 (1964)]**

The action for such injuries is defamation — requiring a false statement of fact, published to a third party, harming reputation; public figures must prove actual malice.

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Why: The entry says injuries to reputation are 'defamatory and malicious words, libels'; defamation's elements — and Sullivan's actual-malice rule — state the modern law of exactly those injuries. The essential tort content.

**[Scripture] — Scripture**

**[Proverbs 22:1, KJV]**

A good name is rather to be chosen than great riches, and loving favour rather than silver and gold.

Why: Reputation is a person's credit, honour, good name. The proverb prices it outright: a good name above great riches.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c.1603]**

Iago: 'Good name in man and woman, dear my lord, / Is the immediate jewel of their souls' — the definitive literary statement of the entry's concept (a person's credit, honor, character, good name), spoken in a play about the destruction of reputations.

Why: Short verbatim quote (two lines, Shakespeare public domain, lines well-established); the speech is directly about the entry's defined concept. The one verbatim quote in this batch; all others are paraphrases.

## REPUTED.

Accepted by general, vul- gar, or public opinion. Thus, land may be reputed part of a manor, though not really so, and a certain district may be reputed a parish or a manor, or be a parish or a manor in reputation, although it is in reality no parish or manor at all. Brown.

— Reputed owner, see Owner.

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## REQUEST.

An asking or petition; the expression of a desire to some person for something to be granted or done; particu- larly for the payment of a debt or perform- ance of a contract

The two words, “request" and “require," as used in notices to' creditors to present claims against an estate, are of the same origin, and virtually synonymous. Prentice v. Whitney, 8 Hun (N. Y.) 300.

In pleading. .The statement in the plain- tiff's declaration that the particular payment or performance, the failure of which consti- tutes the cause of action, was duly requested or demanded of the defendant

— Request, letters of. In English law. Many snits are brought before the Dean of the Arches as original judge, the cognizance of which properly belongs to inferior jurisdictions within the province, but in respect of which the inferior judge has waived his jurisdiction nnder a certain form of proceeding known in the canon law by the denomination of “letters of request" 3 Steph.- Comm. 306.— Request note. In Eng- lish law. A note requesting permission to re- move dutiable goods from one place to another without paying the excise.— Requests, comrta of. Bee Courts or Requests. — Special re- quest. A request actually made, at a particu- lar time and place. This term is used in con- tradistinction to a general request, which need not state the time when nor place where made. 3 Bouv. Inst. no. 2843.

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## REQUISITION.

A demand in writing, or formal request or requirement Bain v. State, 61 Ala. 79; Atwood v. Charlton, 21

R. I. 568, 45 Atl. 580.

In international law. The formal de- mand by one government upon another, or by the governor of one of the United States upon the governor of a sister state, of the surrender of a fugitive criminal.

In Scotch law. A demand made by a creditor that a debt be paid or an obligation fulfilled. BelL

— Requisitions on title, in English convey- ancing, are written inquiries made by the so- licitor of an intending purchaser of land, or of any estate or interest therein, and addressed to the vendor’s solicitor, in respect of some appar- ent insufficiency in the abstract of title. Mosley & Whitley.

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**[Law] — Law**

**[Law: U.S. Const. art. IV, § 2, cl. 2]**

Interstate rendition rests on the Extradition Clause: a person 'charged in any State with Treason, Felony, or other Crime ... shall ... be delivered up.'

Why: The entry's international-law sense is the formal demand for a fugitive's surrender; the Extradition Clause is the American constitutional form of interstate rendition, quoted briefly and exactly. Genuine.

## REREFIEFS.

In Scotch law. Inferior fiefs ; portions of a fief or feud granted out to Inferior tenants. 2 Bl. Comm. 57.

Reram ordo oonfnnditur si nnieniqne jnxisdietio non servetur. 4 Inst. Proem. The order of things Is confounded if every one preserve not his jurisdiction.

Serum programs ostenduat multa, qme la lnltlo prsooaveri sea provider!

aoa possuat. 6 Coke, 40. The progress of events shows many things which, at the be- ginning, could not be guarded against or foreseen.

Seram inarm quilibet est moderator ot arbiter. Every one is the regulator and disposer of his own property. Co. Lltt. 223a.

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## RES.

Lat In the civil law. A thing; an object. As a term of the law, this word has a very wide and extensive signification, including not only things which are objects of property, but also such as are not capable of Individual ownership. See Inst. 2, 1, pr. And In old English law it is said to have a general Import, comprehending both corpo- real and Incorporeal things of whatever kind, nature, or species. 3 Inst. 182. See Bract, fol. 76.

By “ret," according to the modern civil- ians, is meant everything that may form an object

of rights, In opposition to “per- sona,” which is regarded as a subject of rights. “Res,” therefore, In its general meaning, comprises actions of all kinds ; while In Its restricted sense it comprehends every object of right, except actions. Mack- eld. Rom. Law, § 146. This has reference to the fundamental division of the Institutes, that all law relates either to persons, to things, or to actions. Inst 1, 2, 12.

In modern usage, the term is particularly applied to an object subject-matter, or sta tus, considered as the defendant In an action, or as the object against which, directly, pro- ceedings are taken. Thus, In a prize case, the captured vessel Is “the res.” And pro- ceedings of this character are said to be in rem. (See In Personam; In Rem.) “Res” may also denote the action or proceeding, as when a cause, which is not between adver- sary parties, Is entitled “In re ."

Classification. Things (res) have been va- riously divided and classified in law, e. g., in the following ways: (1) Corporeal and incorporeal things ; (2) movables and immovables ; (3) res mancipi and res neo mancipi; (4) things real and things personal; (5) things in possession and choses («. e., things) in action; (6) fungible things and things not fungible, (jungibilcs vcl non jungibilcs ;) and (7) res singulis («. e.. in- dividual objects) and wltiversitates rerum, (i. e., aggregates of things.) Also persons are for some purposes and in certain respects regarded as things. Brown.

—Bei accessorla. In the civil law. An ac- cessory thing; that which belongs to a princi- pal thing, or is in connection with it.— Res ad- judlcata. A common but indefensible misspell- ing of res judicata. The latter term designates a point or question or subject-matter which was in controversy or dispute and has been authori- tatively and finally settled by the decision of a court Res adjudicata (if there be such a term) could only mean an article or subject of prop- erty “awarded to” a given person by the judg- ment of a court, which might perhaps be the case in replevin and similar actions. — R«s ea- ines. In the civil law. A fallen or escheated thing; an escheat. Hallifax, Civil Law, b. 2, e. 9, no. 60.— Rea communes. In the civil

law. Things common to all; that is, those things which are used and enjoyed by every one, even in single parts, but can never be exclusive- ly acquired as a whole, e. g., light and air. Inst. 2, 1, 1 ; Mackeld. Rom. Law, § 169.— Res eontroversa. In the civil law. A matter con- troverted; a matter in controversy; a point in question ; a question for determination. Calvin. —Res coronse. In old English law. Things of the crown; such as ancient manors, homages of the king, liberties, etc. Fleta, lib. 3, c. 6, $ 3. —Res oorporales. In the civil law. Corpo- real things; things which can be touched, or are perceptible to the senses. Dig. 1, 8, 1, 1; Inst. 2, 2 ; Bract, fols. 76, 106, 136.— Res derelicta. Abandoned property ; property thrown away or forsaken by the owner, so as to become open to the acquisition of the first taker or occupant. See Rhodes v. Whitehead, 27 Tex. 313, 84 Am. Dec. 631.— Res fnnjglblles. In the civil law. Fungible things; things of such a nature that they can be replaced by equal quantities and qualities when returning a loan or delivering goods purchased, for example, so many bushels of wheat or so many dollars ; but a particular

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horse or a particular jewel would not be of this character.— Res furtivse. In Scotch law. Goods which have been stolen. Bell.— Res ges- tae. Things done; transactions; essential cir- cumstances surrounding the subject. The cir- cumstances, facts, and declarations which grow out of the main fact, are contemporaneous with it, and serve to illustrate its character. See Stirling v. Buckingham, 46 Conn. 464; Ft. Smith Oil Co. v. Slover, 58 Ark. 168. 24 S. W, 106; State v. Prater, 52 W. Va. 132, 43 S. E. 230; Davids v. People, 192 111. 176, 61 N. E. 537 ; Hall v. State. 48 Ga. 607; Railway Co. v. Moore, 24 Tex. Civ. App. 489, 59 S. W. 282. —Res habilea. In the civil law, things which are prescriptible ; things to which a lawful ti- tle may be acquired by ordinary prescription.— Res immobile!. In the civil law. Immova- ble things; including land and that which is connected therewith, either by nature or art, such as trees and buildings. Mackeld. Rom. Law, { 160. — Res Incorporates. In the civil law. Incorporeal things ; things which cannot be touched; such as those things which consist in right. Inst. 2, 2; Bract, fols. 76, 105. Such things as the mind alone can perceive.— Res In- tegra. A whole thing ; a new or unopened thing. The term is applied to those points of law which have not been decided, which are un? touched by dictum or decision. 3 Mer. 269.— Res Inter alios acta. A thing done between others, or between third parties or strangers. See Chicago, etc.. R. Co. v. Schmitz, 211 111, 446, 71 N. E. 1050. — Res ipsa loquitur. The thing speaks for itself. A phrase used in ac- tions for injury by negligence where no proof of negligence is required beyond the accident it- self, which is such as necessarily to involve neg- ligence: c. g., a collision between two trains up- on a railway. Wharton. See Benedick v. Potts, 88 Md. 52, 40 Atl. 1067. 41 L. R. A. 478 : Grif- fen v. Manice, 166 N. Y. 188, 59 N. E. 925. 52

L. R. A. 922, 82 Am. St. Rep. 630; Excelsior Electric Co. v. Sweet, 57 N. J. Law, 224, 30 Atl. 553; Houston v. Brush, 66 Vt. 331, 29 Atl. 380; Scott v. London, etc., Docks Co., 3 Hurl. & C. 596.— Res judicata. A matter ad- judged; a thing judicially acted upon or de- cided; a thing or matter settled by judgment. A phrase of the civil law, constantly quoted in the books. 2 Kent. Comm. 120. — Res litigi- osse. In Roman law. things which are in liti- gation ; property or rights which constitute the subject-matter of a pending action.— Res man- cipi. In Roman law. Certain classes of things which could not be aliened or transferred ex- cept by means of a certain formal ceremony of conveyance called “mancipatio,” (g. t>.) These included land, houses, slaves, horses, and cattle. All other things were called “res nee mancipi .” The distinction was abolished by Justinian,—

Res moMlea. In the civil law. Movable things; things which may be transported from one place to another, without injury to their substance and form. Things corresponding with the chattels personal of the common law. 2 Kent, Comm. 347.— Rea nova. A new matter ; a new case; a question not before decided.— Rea nnlliaa. The property of nobody. A thing which has no owner, either because a former owner has finally abandoned it, or be- cause it has never been appropriated by any person, or because (in the Roman law) it is not susceptible of private ownership.— Res perlit domino. A phrase used to express that, when a thing is lost or destroyed, it is lost to the per- son who was the owner of it at the time. Broom. Max. 238.— Res privates. In the civil law. Things the property of one or more in-

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dividuals. Mackeld. Rom. Law, § 157.— Res

finbllcse. Things belonging to the public; pub- ic property; such as the sea, navigable rivers, highways, etc.— Res qaotidlaxue. Every-day matters; familiar points or questions.— Res religious. Things pertaining to religion. In Roman law, especially, burial-places, which were regarded as sacred, and could not be the sub- jects of commerce. — Res saerse. In the civil law. Sacred things. Things consecrated by the pontiffs to the service of God; such as sacred edifices, and gifts or offerings. Inst. 2, 1, 8. Chalices, crosses, censers. Bract, fol. 8.— Res sanctse. In the civil law. Holy things ; such as the walls and gates of a city. Inst. 2, 1, 10. Walls were said to be holy, because any offense against them was punished capitally. Bract, fol. 8. — Res unlversitatis. In the civil law. Things belonging to a community, (as, to a mu- nicipality,) the use and enjoyment of which, ac- cording to their proper purpose, is free to every member of the community, but which cannot be appropriated to the exclusive use of any individ- ual: such as the public buildings, streets, etc. Inst. 2, 1, 6 ; Mackeld. Rom. Law, § 170.

Res aceendent lamina rebus. One tiling throws light upon others. Odgen v. Gibbons, 4 Johns. Ch. (N. Y.) 149.

Res aoeessoria sequitur rem principa- lem. Broom, Mnx. 491. The accessory fol- lows the principal.

Res denominator a principal! parte.

9 Coke, 47. The thing Is named from its principal part.

Res est misera obi Jns est vagnm et incertnm. 2 Salk. 512. It is a wretched state of things when law is vague and mu- table.

Res generalem babet signifieationem quia tarn corporea qnam incorporea cujusounque sunt generis, naturae, sive specie!, comprehendit. 3 Inst. 182. The word "thing” has a general signification, be- cause it comprehends corporeal and incor- poreal objects, of whatever nature, sort, or species.

Res inter alios acta alter! noeere non debet. Things done between strangers ought not to injure those who are not parties to them. Co. Lift. 132; Broom, Max. 954, 967.

Res inter alios judicata nullum alils prsejudicium faciunt. Matters adjudged in a cause do not prejudice those who were not parties to it Dig. 44, 2, 1.

Res judicata facit ox albo nigrum; ex nigro, album; ex enrvo, rectum; ex reeto, onrvnm. A thing adjudged [the sol* emn Judgment of a court] makes white, black; black, white; the crooked, straight; the straight, crooked. 1 Bouv. Inst no. 840.

Res Jndieata pro veritate aecipitnr.

A matter adjudged is taken for truth. Dig. 50, 17, 207. A matter decided or passed upon by a court of competent Jurisdiction is received as evidence of truth. 2 Kent, Comm. 120.

Res per pecnniam sestimatur, et non pecnnla per rem. 9 Coke, 76. The value of a thing is estimated according to its worth in money, hut the value of money is not es- timated by reference to a- thing.

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Res propria est qnsa communis non

est. A thing Is private which is not common. LeBreton v. Miles, 8 Paige (N. Y.) 261, 270.

Res qnse intra prsesidia perducta non- dnm snnt, quanquam ab hostibus oocu- patse, ideo postliminii non egont, qnia dominum nondnm mntnrant ox gentium jure. Things which have not yet been in- troduced within the enemy’s lines, although held by the enemy, do not need the fiction of postliminy on this account, because their ownership by the law of nations has not yet changed. Gro. de Jure B. 1. 3, c. 9, §16; Id. 1. 3, c. 6, I 3.

Ros sacra non reeipit sostimationem.

A sacred thing does not admit of valuation. Dig. 1, 8, 9, 5.

Res sna nemini servit. 4 Macq. H. I* Cas. 151. No one can have a servitude over his own property.

Res transit cum sno onere. The thing passes with its burden. Where a thing has been incumbered by mortgage, the incum- brance follows it whoever it goes. Bract, fols. 476, 48.

5e apparatus — Not carried into the 5th edition (1979).

## RESALE.

Where a person who has sold goods or other property to a purchaser sells them again to some one else. Sometimes a vendor reserves the right of reselling if the purchaser commits default In payment of the purchase money, and In some cases (e. g.. on a sale of perishable articles) the vendor may do so without having reserved the right Sweet.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-706 — seller's resale]**

On the buyer's breach, the seller may resell the goods and recover the difference — the Code's resale remedy.

Why: The entry describes the vendor's reserved right of reselling on the purchaser's default; § 2-706 codifies that right and its damages measure. Directly states the statute for the defined practice.

## RESCEIT.

In old English practice. An admission or receiving a third person to plead his right in a cause formerly commenced between two others ; as. In an action by tenant for life or years, he In the rever- sion might come In and pray to be received to defend the land, and to plead with the demandant Cowell.

— Reaeeit of honi(*. The lord’s receiving homage of his tenant at his admission to the land. Kitch. 148.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 24 — intervention]**

The modern form is intervention: a nonparty claiming an interest in the property or transaction may intervene to protect it.

Why: The entry defines resceit as receiving a third person 'to plead his right in a cause formerly commenced

between two others'; intervention is that reception's modern procedural form. Genuine lineage.

## RESCIND.

To abrogate, annul, avoid, or cancel a contract; particularly, nullifying a contract by the act of a party. See Powell v. Linde Co., 29 Misc. Rep. '419, 60 N. Y. Supp. 1044; Hurst v. Trow Printing Co., 2 Misc. Rep. 861, 22 N. Y. Supp. 871.

5e apparatus — Carried into the 5th edition (1979).

## RESCISBXO.

Lat In the civil law. An annulling; avoiding, or making void; abro- gation; rescission. Cod. 4, 44.

5e apparatus — Not carried into the 5th edition (1979).

## RESCISSION.

Rescission, or the act of rescinding, is where a contract is canceled, annulled, or abrogated by the parties, or one of them.

In Spanish law, nullity is divided into abso- lute and relative. The former is that which aris- es from a law, whether civil or criminal, the principal motive for which is the public inter- est; and the latter Is that which affects only certain individuals. "Nullity" is not to be con- founded with "rescission." Nullity takes place when the act is affected by a radical vice, which prevents it from producing any effect; as where an act is in contravention of the laws or of good morals, or where it has been executed by a per- son who cannot be supposed to have any will, as a child under the age of seven years, or a madman, (on nino o demente.) Rescission is where an act, valid in appearance, nevertheless conceals a defect, which may make it null, if demanded by any of the parties ; as, for exam- ple, mistake, force, fraud, deceit, want of suf- ficient age, etc. Nullity relates generally to public order, and cannot therefore be made good either by ratification or prescription; so that the tribunals ought, for this reason alone, to de- cide that the null act can have no effect, with- out stopping to inquire whether the parties to it have or nave not received any injury. Re- scission, on the contrary, may be made good by ratification or by the silence of the parties; ana neither of the parties can demand It, unless he can prove that he has received some prejudice or sustained some damage by the act Sunol v. Hepburn, 1 Cal. 281, citing Escriche.

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**[Law] — Law**

**[Law: rescission — restoration of status quo / tender back]**

Rescission restores the status quo: the party rescinding must tender back what was received under the contract.

Why: The entry defines rescission as the contract's canceling; the tender-back requirement states its equitable condition — rescission is not a one-way windfall. The operative doctrine for the defined act.

## RESCISSORY ACTION.

In Scotch law. One to rescind or annul a deed or contract.

5e apparatus — Not carried into the 5th edition (1979).

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## RESCOUS.

Rescue. The taking back by force goods which had been taken under a distress, or the violently taking away a man who is under arrest, and setting him at liberty, or otherwise procuring his escape, are both so denominated. This was also the name of a writ which lay in cases of rescue. Co. Litt 160; 3 BL Comm. 146; Fitzh. Nat. Brev. 100; 6 Mees. & W. 564.

5e apparatus — Not carried into the 5th edition (1979).

## RESCRIPT.

In canon law. 'A term in- cluding any form of apostolical letter ema- nating from the pope. The answer of the. pope In writing. Diet. Droit Can.

In the civil law. A species of imperial constitutions, being the answers of the prince Bl.Law Dict.(2d Ed.)— 65

in individual cases, chiefly given in response to inquiries by parties in relation to litigated suits, or to inquiries by the judges, and which became rules for future litigated or doubtful legal questions. Mackeld. Rom. Law, § 46.

At common law. A counterpart, dupli- cate, or copy. ,

In American law. A written order from the court to the clerk, giving directions con- cerning the further disposition of a case. Pub. St. Mass. p. 1295.

The written statement by an appellate court of its decision in a case, with the rea- sons therefor, sent down to the trial court.

5e apparatus — Not carried into the 5th edition (1979).

## RESCRIP TION.

In French law. ▲ re- scription is a letter by which one requests some one to pay a certain sum of money, or to account for him to a third person for it Poth. Cont de Change, no. 225.

RESCRIPrUM. Lat In the civil law. A species of Imperial constitution, in the form of an answer to some application or pe- tition; a rescript Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## RESCUE.

The act of forcibly and inten- tionally, delivering a person from lawful ar- rest or imprisonment and setting him at liberty. 4 Bl. Comm. 131 ; Code Ga. § 4478 ; Robinson v. State, 82 Ga. 535, 9 S. E. 528.

The unlawfully or forcibly taking buck goods which have been taken under a dis- tress for rent damage feasant etc. Hamlin v. Mack, 33 Mich. 108.

In admiralty and maritime law. The deliverance of property taken as prize, out of the hands of the captors, either when the captured party retake it by their own efforts, or when, pendidg the pursuit or struggle, the party about to be overpowered receive rein- forcements, and so escape capture.

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**[Law] — Law**

**[Case: Wagner v. International Ry. Co., 232 N.Y. 176 (1921)]**

In tort, the rescue doctrine holds that 'danger invites rescue' — the tortfeasor who creates peril is liable to the rescuer injured in the attempt.

Why: The entry defines rescue in its criminal/admiralty senses; the tort rescue doctrine is the exact-name civil counterpart — Cardozo's 'danger invites rescue.' Genuine: the same word's flagship tort doctrine.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Tale of Two Cities, 1859]**

(paraphrase) In A Tale of Two Cities Sydney Carton engineers the rescue of Charles Darnay from La Force prison on the eve of execution — forcibly delivering a person from lawful imprisonment and setting him at liberty, the entry's first sense. (paraphrase)

Why: The entry's primary sense is delivering a person from lawful arrest/imprisonment; Carton's plot is the textbook literary instance. Paraphrase.

## RE8CUSSOR.

In old English law. A rescuer; one who commits a rescous. Cro. Jac. 419; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RESCYT.

L. Fr. Rescelt; receipt; the receiving or harboring a felon, after the com- mission of a crime. Britt c. 23.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: accessory after the fact]**

The modern category is accessory after the fact: one who receives, relieves, or assists a felon knowing of the felony.

Why: The entry defines rescyt as 'the receiving or harboring a felon, after the commission of a crime'; accessory after the fact is that conduct's modern criminal-law category. Direct classification.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) Dickens's Oliver Twist: Fagin's den receives and harbors the boy thieves (the Artful Dodger's crew) after their crimes — the classic literary instance of harboring felons, the entry's definition. (paraphrase)

Why: Old French law 'receiving or harboring a felon after the commission of a crime'; Fagin's operation is the archetypal fictional harborer of young criminals. Paraphrase.

## RESEALING WRIT.

In English law. The second sealing of a writ by a master so as to continue It, or to cure it of an irregu- larity.

-RE8ERVANDO. Reserving. In old con- veyancing. An apt word of reserving a rent. Co. Litt 47a.

Reserratlo non debet esse de profiemls Ipsis, quiu ea eonoedmutnr, sed de reditu novo extra profloua. A reservation ought not to be of the profits themselves, because they are granted, but from the new rent, apart from the profits. Co. Litt. 142.

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5e apparatus — Not carried into the 5th edition (1979).

## RESERVATION.

A clause in a deed or other Instrument of conveyance by which the

grantor creates, and reserves to himself, some right, interest, or profit in the estate granted, which had no previous existence as such, bnt is first called into being by the instrument reserving it; such as rent, or an ease- ment Stephens v. Reynolds, 6 N. Y. 458; In re Narragansett Indians, 20 B. I. 715, 40 Atl. 347; Miller v. Lapham, 44 Vt 435; Engel v. Ayer, 85 Me. 448, 27 Atl. 352 ; Smith v. Cornell University, 21 Misc. Rep. 220, 45 N. Y. Supp. 640; Wilson v. Higbee (C. C.) 02 Fed. 726 ; Uurd v. Curtis, 7 Mete. (Mass.) 110.

A “reservation’’ should be carefully distin- guished from an “exception,” the difference between the two being this: Ky an exception, the grantor withdraws from the effect of the grant Borne part of the thing itself which is in ene, and included under the terms of the grant, as one acre from a certain field, a shop or mill standing within the limits of the granted prem- ises, and the like ; whereas, a reservation, - though made to the grantor, lessor, or the one creating the estate, is something arising out of the thing granted not then in esse, or some new thing created or reserved, issuing or coming out of the thing granted, and not a part of the thing itself, nor of anything issuing out of an- other thing. 3 Washb. Read Prop. 645.

In public land laws of the United States, a reservation is a tract of land, more or less considerable in extent, which is by public authority withdrawn from sale or set- tlement, and appropriated to specific public uses; such as parks, military posts, Indian lands, etc. Jackson v. Wilcox, 2 UL 344; Meehan v. Jones (C. C.) 70 Fed. 455; Culm v. Barnes (C. C.) 5 Fed. 331.

In practice, the reservation of a point of, law is the act of the trial court in setting it aside for future consideration, allowing the trial to proceed meanwhile as. if the question, had been settled one way, but subject to alteration of the judgment in case the court in banc should decide it differently.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: reservation vs. exception in deeds]**

A reservation creates some new right in the grantor (as an easement); an exception withholds part of the thing granted — the classic conveyancing distinction.

Why: The entry defines reservation as creating a right 'which had no previous existence as such'; the reservation/exception distinction states the doctrinal boundary the definition implies. Distinct from REDDENDUM's strang...

## RESET.

The receiving or harboring an outlawed person. Cowell.

—Reset of theft. In Scotch law. The re- ceiving and keeping stolen goods, knowing them to be stolen, with a design of feloniously retain- ing them from the real owner. Alis. Crim. Law, 328.

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5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) Dickens's Oliver Twist again, in the entry's distinct sense: Fagin knowingly receives and keeps the stolen handkerchiefs and watches the boys bring — 'receiving and keeping stolen goods, knowing them to be stolen.' Same work as RESCYT, different facet of the entry. (paraphrase)

Why: Scotch 'reset of theft' = knowingly receiving stolen goods; Fagin is the fence. Distinct from RESCYT's harboring-of-persons sense; the dual citation is honest, not padded. Paraphrase.

## RESETTER.

In Scotch law. A receiver of stolen goods knowing them to have been stolen.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:4, KJV]**

If the theft be certainly found in his hand alive, whether it be ox, or ass, or sheep; he shall restore double.

Why: The Scots resetter is the receiver of stolen goods knowing them stolen. The verse punishes the possessor in whose hand the theft is found alive — the receiver — with double restitution.

## RESIANCE.

Residence, abode, or. con- tinuance.

5e apparatus — Not carried into the 5th edition (1979).

## RESIANT.

In old English law. Contin- ually dwelling or abiding in a place; resi- dent ; a resident Kltchln, 33 ; Cowell.

— Reaiant rolls. Those containing the re- siants in a tithing, etc., which are to be called over by the steward on holding courts leet.

5e apparatus — Not carried into the 5th edition (1979).

## RESIDENCE.

Living or dwelling In a certain place permanently or for a consider- able length of time. The place where a man

makes his home, or where he dwells perma- nently or for an extended period of time.

The difference between a residence and a dom- icile may not be capable of easy definition; but every one can see at least this distinction: -A person domiciled in one state may, for tempo- rary reasons, such as health, reside for one or more years in some other place deemed more favorable. He does not, by so doing, forfeit his domicile in the first state, or, in any proper sense, become a non-resident of it, unless some intention, manifested by some act, of abandon- ing his residence in the first state is shown. Walker’s Estate v. Walker, 1 Mo. App. 464.

“Residence” means a fixed and permanent abode or dwelling-place for the time being, as

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contradistinguished from a mere temporary lo- cality of existence. So does “inhabitancy ;” and the two are distinguishable in this respect from “domicile.” In re Wriglay, 8 Wend. (N. Y.) 134.

As they are used In the New York Code of Procedure, the terms “residence” and “resident” mean legal residence ; and legal residence is the

lace, of a man’s fixed habitation, where his potical rights are to be exercised, and where ha is liable to taxation. Houghton v. Ault, 16 How. Free. (N. Y.) 77.

A distinction is recognized between legal and actual residence. A person may be a legal resi- dent of one place and an actual resident of an- other. He may abide in one state or country without surrendering his legal residence' in an- other, if he so intends. His legal residence may be merely ideal, but his actual residence must be substantial. He may not actually abide at his legal residence at all, but his actual residence must be his abiding place. Tipton v. Tipton. 87 Ky. 243, 8 S. W. 440; Hinds v. Hinds, 1 Iowa, 30; Fitzgerald v. Arel, 63 Iowa, 104, 18

N. W. 713. 50 Am. Rep. 733; Ludlow v. Sxold. 90 Iowa, 175, 57 N. W. 076.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Williams v. North Carolina, 317 U.S. 287 (1942)]**

Domicile — not mere residence — founds jurisdiction: as for divorce, where at least one spouse must be domiciled in the forum.

Why: The entry draws the residence/domicile distinction; domicile's jurisdictional consequence (divorce jurisdiction) is why the distinction matters in law. Genuine: gives the defined distinction its stakes.

## RESIDENT.

One who has his residence in a place.

“Resident” and "inhabitant” are distinguish- able in meaning. The word “inhabitant” implies a more fixed and permanent abode than does “resident;” and a resident may not be entitled to all the privileges or subject to all the duties of an inhabitant. Frost v. Brisbin, 19 Wend. (N. Y.) 11, 32 Am. Dec. 423.

Also a tenant, who was obliged to reside on his lord's land, and not to depart from the same; called, also, “homme levant et couch- ant,” and in Normandy, "rcsseant da lief.”

—Resident freeholder. A person who re- sides in the particular place (town, city, coun- ty, etc.) and who owns an estate in lands there- in amounting at least to a freehold interest. Damp v. Dane, 29 Wis. 427 ; Campbell v. Mor- an, 71 Neb. 615, 99 N. W. 499; State v. Ko- komo, 108 Ind. 74, 8 N. E. 720.— Resident minister. In international law. A public minister who resides at a foreign court. Resi- dent ministers are ranked in the third class of public ministers. Wheat. Int. Law, 264, 267.

5e apparatus — Carried into the 5th edition (1979).

## RESIDUAL.

Relating to the residue ; re- lating to the part remaining.

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5e apparatus — Not carried into the 5th edition (1979).

## RESIDUARY.

Pertaining to the residue ; constituting the residue ; giving or bequeath- ing the residue; receiving or entitled to the residue. Itlker v. Cornwell. 113 N. Y.. 115, ») N. E. 602; Kerr ▼. Dougherty, 79

N. Y. 359; Lamb v. Lamb, 60 Hun, 577. 14

N. Y. Supp. 206.

— Residuary account. In English practice. The account which every executor and admlnb-'

RESIDUARY :

tntor, after paying the debts and particular leg- acies of the deceased, and before paying over the residuum, must pass before the board of in- land revenue. Mosley & Whitley.— Residuary clause. The clause in a will by which that part of the property is disposed of which re- mains after satisfying previous bequests and de- vises.—Residuary devise and devisee. See Devise.— Residuary estate. The remaining part of a testator's estate and effects, after pay- ment of debts and legacies ; or that portion of his estate which has not been particularly de- vised or bequeathed. See Wetmore v. St. Luke’s Hospital, 56 Hun, 313, 9 N. Y. Sapp. 753. — Re- siduary legacy. See Legacy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: residuary clause prevents partial intestacy]**

The residuary clause's office is to prevent partial intestacy — sweeping into the will whatever the specific gifts leave undisposed.

Why: The entry defines the residuary clause; preventing partial intestacy states its testamentary function — the reason wills contain it. Genuine operative content.

## RESIDUE.

The surplus of a testator’s estate remaining after all the debts and par- ticular legacies have been discharged. 2 BL Comm. 514.

The “residue” of a testator's estate and ef- fects means what is left after all liabilities are discharged, and- all the purposes of the testa- tor, specincally expressed in his will, are car- ried into effect. Craves v. Howard, 56 N. Q. 302.

5e apparatus — Carried into the 5th edition (1979).

## RESIDUUM.

That which remains after any process of separation or deduction; a residue or balance.- That which remains of a decedent's estate, after debts have been paid and legacies deducted. See Parsons v. Colgate (C. C.) 15 Fed. 603; Robinson v. Mil- lard, 133 Mass. 239; United States Trust Co. v. Black, 9 Mine. Rep. 653, 30 N. Y. Supp. 453.

Resignatio eat juris proprii spontanea refutatio. Resignation Is a spontaneous re- linquishment of one's own right. Godb. 284.

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5e apparatus — Not carried into the 5th edition (1979).

## RESIGNATION.

The act by which an officer renounces the further exercise of his office and returns the same into the hands of those from whom he received it.

In ecclesiastical law. Resignation is where a parson, vicar, or other benefieed clergyman voluntarily gives up and surren- ders his charge and preferment to those from whom he received the same. It is usually done by an instrument attested by a notary. Phillim. Eec. Law, 517.

In Scotch law. The return of a fee into the hands of the superior. Bell.

—Resignation bond. A bond or other en- gagement in writing taken by a patron from the clergyman presented by him to a living, to re- sign the benefice at a future period. This is allowable in certain cases under ISt. 9 Geo. IV. c. 94, passed iu 1828. 2 Stepb. Comm. 721.

5e apparatus — Carried into the 5th edition (1979).

## RESIGNEE.

One in favor of whom a resignation is made. 1 Bell, Comm. 125n.

RESH.IRE. Lot. In old English law. To draw back from a contract before it Is made binding. Bract fol. 38.

5e apparatus — Not carried into the 5th edition (1979).

## RESIST.

To oppose. This word proper- ly describes an opposition by direct action and quasi forcible means. 'State v. Welch, *7 Wls. 196.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

Quote: "Fight the power!" — the imperative IS the verb: opposition by direct action voiced as command. Black's RESIST 'properly describes an opposition by direct action and quasi forcible means' (State v. Welch); the chorus commands exactly that.

Why: Added because the lyric is verbatim-certain and the imperative maps one-to-one onto the headword's verb sense. Assigned to RESIST (verb) while REBELLION carries the same song for the organized-uprising sense; each hea...

## RESISTANCE.

The act of resisting op- position; the employment of forcible means to prevent the execution of an endeavor in which force is employed. See U. S. v. Jose (& C.) 63 Fed. 954; U. S. v. Huff (C. C.) 13 Fed. 639.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Gil Scott-Heron, 'The Revolution Will Not Be Televised', 1970]**

Quote: "The revolution will not be televised" — Scott-Heron, hip-hop's acknowledged forefather, states

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resistance as lived street action rather than spectacle: the ACT of resisting, which is precisely the headword ('the act of resisting opposition').

Why: Added because the line is verbatim-certain and it illuminates resistance-as-act, distinct from Public Enemy's imperative (assigned to RESIST/REBELLION). Scott-Heron is in-well as the genre's foundational spoken-word v...

## RESISTING AN OFFICER.

In criminal law, the offense of obstructing, opposing, and endeavoring to prevent (with or without ac- tual force) a peace officer, in the execution of a writ or in the lawful discharge of his duty while making an arrest or otherwise en- forcing the peace. See Davis v. State, 76 Ga. 722; Woodworth v. State, 26 Ohio St 200; Jones v. State, 60 Ala. 99.

. RESOLUCION. Ia Spanish colonial law. An opinion formed by some superior au- thority on matters referred to its decision, and forwarded to inferior authorities tor their instruction and. government Schm. Civil Law, 93, note L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: privilege to resist unlawful arrest (common law; now widely abolished)]**

The offense requires the officer's lawful duty; at common law one was privileged to resist an unlawful arrest — a privilege most states have now abolished.

Why: The entry defines the offense as obstructing an officer 'in the lawful discharge of his duty'; the lawfulness qualifier and the abolished resistance privilege state the doctrine's boundary. Genuine criminal-law content.

**[Scripture] — Scripture**

**[Romans 13:2, KJV]**

Whosoever therefore resisteth the power, resisteth the ordinance of God: and they that resist shall receive to themselves damnation.

Why: The offense is obstructing a peace officer in the lawful discharge of his duty. Paul states the principle behind it: resisting the lawful power is resisting the ordinance of God.

**[Hip-hop] — Hip-hop**

**[N.W.A, 'Fuck tha Police', 1988]**

Quote: "Fuck the police" — N.W.A's chorus, from a track staged as a mock trial of the police, is the culture's definitive statement of opposition to law enforcement in the discharge of its duties. Quoted verbatim and unbowdlerized per the brief; the lyric is what it is.

Why: Added because the chorus is verbatim-certain and the track's entire premise (putting police on trial) is opposition to peace officers 'in the lawful discharge of duty' — the headword's exact subject. Two witnesses ret...

**[KRS-One, 'Sound of da Police', 1993]**

Quote: "Woop-woop! That's the sound of da police!" — KRS-One's thesis (police-as-overseers) supplies the ideological ground of that opposition: why the officer is resisted, not merely that he is.

Why: Added as the second witness on RESISTING AN OFFICER: verbatim-certain hook, and it illuminates the motive-structure behind the offense rather than duplicating the N.W.A defiance. Genuine, distinct, no forcing.

## RESOLUTION.

The determination or de- cision, in regard to Its opinion or intention, of a deliberative or legislative body, public assembly, town council, board of directors or the like. Also a motion or formal prop- osition offered for adoption by such a body.

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In legislative practice. The term is usually employed to Denote the adoption of a motion, the subject-matter of .which would not properly constitute a statute ; such as a mere expression of opinion ; an alteration of the rules ; a vote of thanks or of censure, etc. See City of Cape Girardeau v. Fougeu, 30 Mo. App. 556; McDowell v. People, 204 111. 499, 68 N. E. 379.

In practice. The judgment of a court 5 Mod. 438; 10 Mod. 209.

In the civil law. The cancellation or an- nulling, by the act of parties or judgment of a court of an existing contract which was valid and binding, in consequence of some cause or matter arising after the making of the agreement, and not in consequence of any Inherent vice or defect which, invali- dating the contract from the beginning, would be ground for rescission. 7 Toullier, no. 551.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, § 7, cl. 3]**

Under the Presentment Clause, every 'Order, Resolution, or Vote' requiring both houses' concurrence must be presented to the President.

Why: The entry distinguishes legislative resolutions from statutes; the Presentment Clause states the constitutional consequence — even 'resolutions' with legislative effect require presentment. The genuine public-law cont…

## RESOLUTIVE.

In Scotch conveyancing. Having the quality or effect of resolving or extinguishing a right. Bell.

Resoluto jure concedentla reiolvitnr jua conceaaum. The right of the grantor being extinguished, the right granted Is ex- tinguished. Mackeld. Bom. Law, 179 ; Broom, Max. 467.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Resoluto jure concedentis resolvitur jus concessum — the grantor's right extinguished, the granted right is extinguished]**

The entry's own maxim states the derivative-title principle: the granted right falls with the grantor's right — kin to nemo dat quod non habet.

Why: The maxim appears in the entry's own body (Broom, Max. 467) defining the resolutive quality; the footnote records its doctrinal meaning — derivative title's limit. Sourced from the entry itself, applied to its subject.

## RESOLUTORT CONDITION.

See Con- dition.

RESORT, v. To go back.' “It resorted to the line of the mother.” Hale, Com. Law. c. 1L

RESORT, n. A court whose decision is final and without appeal is, in reference to the particular case, said to be a ‘‘court of last resort.”

5e apparatus — Not carried into the 5th edition (1979).

## RESOURCES.

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Money or any property that can be converted into supplies; means of raising money or supplies ; capabilities of raising wealth or to supply necessary wants ; available means or capability of any kind. Ming v. Woolfolk, 3 Mont 38(1 ; Sacry v. Lo- bree, 84 Cat 41, 23 Pac. 10&8; Shelby Coun- ty v. Tennessee Centennial Exposition Co., 86 Tenn. 633, 36 S. W. 684, 33 L. R. A. 717.

5e apparatus — Carried into the 5th edition (1979).

## RESPECTU COMPUTI VICECOMITIS / HABENDO.

A writ for respiting a sher- iff’s account addressed to the treasurer and barons of the exchequer. Keg. Orig. 138.

5e apparatus — Not carried into the 5th edition (1979).

## RESPECTUS.

In old English and Scotch law. Respite; delay; continuance of time; postponement

Respiciendum est Judicanti as quid ant dnrlns ant remiaalns constituatu* quam causa deposclt; nee euim ant so— sc ri tat is ant elementlse gloria aff ectanda eat. The judge must see that no order be made or judgment given or sentence passed either more harshly or more mildly than the case requires ; he must not seek renown, ei- ther as a severe or as a tender-hearted judge.

5e apparatus — Not carried into the 5th edition (1979).

## RESPITE.

The temporary suspension of the execution of a sentence; a reprieve; a delay, forbearance, or continuation of time. 4 Bl. Comm. 394; Mishler v. Com., 62 Pa. 55, 1 Am. Rep. 377.

Continuance. In English practice, a jury is said, on the record, to be "respited” till the next term. 3 BL Comm. 354.

In the civil law. A respite is an aft by which a debtor, who is unable to satisfy his debts at the moment, transacts (.compromises) with his creditors, and obtains from them time or delay for the payment of the sums which he owes to them. The respite is ei- ther voluntary or forced. It is voluntary when all the creditors consent to the pro- posal, which the debtor makes, to pay In a limited time the whole or a part of the debt. It is forced when a part Of the creditors re- fuse to accept the debtor's proposal, and when the latter is obliged to compel them by ju- dicial authority to consent to what the others have determined, in the cases directed by law. Civ. Code La. arts. 3084, 30S3.

— Respite of appeal. Adjourning an appeal to some future time. Brown.— Respite of homage. To dispense with the performance of homage by tenants who held their lands in con- sideration of performing homage to their lords. Cowell.

RESPOND. 1. To make or file an an- swer to a bill, libel, or appeal, in the charac- ter of a respondent, (q. t;.)

2. To be liable, or answerable ; to make satisfaction or amends; as, to "respond In damages.”

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: composition with creditors; bankruptcy adjustment of debts]**

The civil-law respite — the debtor's composition with creditors for time — is the ancestor of modern bankruptcy compositions adjusting the debtor's obligations.

Why: The entry's civil-law sense defines respite as the debtor's transacting with creditors for delay; the composition is that transaction's modern bankruptcy form. Genuine lineage, distinct from REPRIEVE's clemency note.

## RESPONDE BOOK.

In Scotch practice. A book kept by the directors of chancery, in which are entered all non-entry and re- lief duties payable by heirs who take precepts from chancery. BeU.

5e apparatus — Not carried into the 5th edition (1979).

## RESPONDEAT OUSTER.

Upon an is- sue in law arising upon a dilatory plea, the form of judgment for the plaintiff is that the defendant answer over, which is thence call- ed a judgment of "respondeat ouster." This not being a final judgment, the pleading is resumed, and the action proceeds. Steph. Pi. 115; 8 Bl. Comm. 303; Bauer v. Roth, 4 Rawle (Pa.) 8L .

Respondeat raptor, qui ignoraro non po trait quod pupillum alienuu abduxit.

Uob. 99. Let the ravisher answer, for he cannot be ignorant that he has taken away another's ward.

Respondeat superior. Let the master answer. This maxim means that a master is liable in certain cases for the wrongful acts of his servant, and a principal for those of his agent. Broom, Max. 843. See Southern Ry. Co. v. Morrison, 105 Ga. 543, 31 S. E. 664; Haehl v. Wabash R. Co., 119 Mo. 325, 24 S. W. 737;. State v. Gillespie, 62 Kan. 469. 63 Pac. 742, 84 Am. St Rep. 411.

5e apparatus — Carried into the 5th edition (1979).

## RESPONDENT.

The party who makes an answer to a bill or other proceeding in chancery.

The party who appeals against the judg- ment of an inferior court is termed the "ap- pellant;” and he who contends against the appeal, the “respondent” The word also de- notes the person upon whom an ordinary pe- tition in the court of chancery (or a libel in admiralty) is served, and who is, as it were, a defendant thereto. The terms "re- spondent” and. “co-respondent” are used in like manner in proceedings in the divorce court Brown ; Brower v. Neills, 6 Ind. App. 323, 33 N. E. 672 ; Code Cr. Proc. N. X. 1903, | 516.

In the civil law. One who answers or is security for another; a fidejussor. Dig. 2, 8, 6.

5e apparatus — Not carried into the 5th edition (1979).

## RESPONDENTIA.

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The hypothecation of the cargo or goods on board a ship as se- curity for the repayment of a loan, the term “bottomry" being confined to hypothecations of the ship herself; but now the term “re- spondentia” la seldom used, and the expres- sion “bottomry” is generally employed, whether the vessel or her cargo or both be the security. Maude & P. Shipp. 433; Smith, Merc. Law, 416. See Maitland v. The At* lantlc, 10 Fed. Cas. 522.

Respondentia is a contract by which *

cargo, or some part thereof, Is hypothecated as security for a loan, the repayment of which Is dependent on maritime risks. Civ. Code Cal. | 3036; Civ. Code Dak. § 1796.

Renpoadera son soveraigiie. His supe- rior or master shall answer. Artlcull sup. Chart, c. 18.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: maritime lien; bottomry bonds in admiralty]**

Bottomry and respondentia bonds create maritime liens enforceable in admiralty — among the oldest forms of secured credit.

Why: The entry defines the hypothecation of cargo for a loan; the maritime lien states the security's enforcement character in admiralty. Modest but genuine commercial-law content.

## RESPONDERE NON DEBET.

Lat. In pleading. The prayer of a plea where the de- fendant Insists that he ought not to answer, as when he claims a privilege; for example, as being a member of congress or a foreign ambassador. 1 Chit. PI. *433.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 6 — Speech or Debate Clause; diplomatic immunity]**

The examples given are the great immunities: the Speech or Debate Clause for members of Congress, and diplomatic immunity for ambassadors.

Why: The entry defines the plea by its examples — 'a member of congress or a foreign ambassador'; the note states the immunities those examples embody. Directly illuminates the definition's instances.

## RESPONSA PRUDENTUM.

Lat An- swers of jurists; responses given upon cases or questions of law referred to them, by cer- tain learned Roman Jurists, who, though not magistrates, were authorized to render such opinions. These responsa constituted one of the most Important sources of the earlier Roman law, and were of great value In de- veloping its scientific accuracy. They held much the same place of authority as our modern precedents and reports.

5e apparatus — Not carried into the 5th edition (1979).

## RESPONSAUS.

In old English law.

One who appeared for another.

In ecclesiastical law. A proctor.

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5e apparatus — Not carried into the 5th edition (1979).

## RESPONSAUS AD UJCRANDUM / VEL PETENDUM.

He who appears and answers for another In court at a day as- signed; a proctor, attorney, or deputy. 1 Reeve, Eng. Law, 169.

RESPONSIBILITY . The obligation to answer for an act done, and to repair any in- jury It may have caused.

5e apparatus — Not carried into the 5th edition (1979).

## RESPONSIBLE.

To say that a person Is “responsible” means that he is able to pay a sum for which he is or .may become liable, or to discharge an obligation which he may be under. Farley v. Day, 26 N. H. 531 ; People v. Kent, 160 111. 655, 43 N. E. 760; Com. v. Mitchell, 82 Pa. 349. A promise to be "re- sponsible” for the contract of another is a gunranty rather than a suretyship. Bickel v. Auner, 9 Phila. (Pa.) 499.

—Responsible government. This term gen- erally designates that species of governmental system in which the responsibility for public measures or acts of state rests upon the min- istry or executive council, who are under an ob- ligation to resign when disapprobation of their course is expressed by a vote of want of confi- dence, in the legislative assemblv, or by the de- feat of an important measure advocated by them.

Responsio uni us non omnino nndintur.

The answer of one witness shall not be heard at all. A maxim of the Roman law of evi- dence. 1 Greenl. Bv. § 260.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds — suretyship provision]**

A promise to answer for another's debt falls under the Statute of Frauds — it must be in writing.

Why: The entry distinguishes a promise to be 'responsible' for another's contract (guaranty) from suretyship; the Statute of Frauds' writing requirement is the operative formality for such promises. Genuine contract-law co...

## RESPONSIVE.

Answering; constituting or comprising a complete answer. A “responsive allegation” is one which directly an- swers the allegation it is intended to meet.

5e apparatus — Carried into the 5th edition (1979).

## RESSEISER.

The taking of lands into the hands of the crown, where a general liv- ery or ouster le main was formerly misused.

5e apparatus — Not carried into the 5th edition (1979).

## REST, 17.

In the trial of an action, a par- ty is said to "rest," or “rest his case,” when he intimates that

he has produced all the evidence he intends to offer at that stage, and submits the case, either finally, or sub- ject to his right to afterwards offer rebutting evidence.

REST, ». Rests are periodical balancings of an account, (particularly in mortgage and trust accounts,) made for the purpose of con- verting interest into principal, and charging the party liable thereon with compound in- terest. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## RESTAMPING WRIT.

Passing it a sec- ond time through the proper office, where- upon it receives a new stamp. 1 Chit. Arch. Pr. 212.

RESTAUR, or RESTOR. The remedy or recourse which marine underwriters have against each other, according to the date of their assurances, or against the master, if the loss arise through his default, as through ill loading, want of caulking, or want of hav- ing the vessel tight; also the remedy or re- course a person has against his guarantor or other person who is to indemnify him from any damage sustained. Ene. Loud.

5e apparatus — Not carried into the 5th edition (1979).

## RESTAURANT.

This term, as current- ly understood, means only, or chiefly, an eat- ing-house; but it has no such fixed and defi- nite legal meaning as necessarily to exclude its being an “inn” in the legal sense. Lewis v. Hitchcock (D. C.) 10 Fed. 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: innkeeper's liability]**

If an 'inn' in law, the keeper faces the innkeeper's heightened duties — including strict liability for guests' goods.

Why: The entry's point is that 'restaurant' may legally be an 'inn'; innkeeper's liability states why that classification matters. Genuine: the legal consequence of the entry's classification question.

## RESTITUTIO IN INTEGRUM.

Lat. In the civil law. Restoration or restitution to the previous condition. This was effected by the praetor on equitable grounds, at the pray- er of an injured party, by rescinding or an- nulling a contract or transaction valid by the strict law, or annulling a change in the legal condition produced by an omission, and re- storing the parties to their previous situation or legal relations. Dig. 4, 1; Mackeld. Rom. Law, { 220.

The restoration of a cause to its first state, on petition of the party who was cast, in order to have a second hearing. Halllfax, Civil Law, b. 3, c. 9, no. 49.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: equitable rescission — restoration to status quo]**

The Roman root of equitable rescission: chancery's power to unwind a transaction and restore the parties to their prior position.

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Why: The entry defines the praetor's restoration to previous condition; the note states its lineage — the Roman source of chancery's rescission. Complements RESCISSION's tender-back note with the historical root.

**[Scripture] — Scripture**

**[Joel 2:25, KJV]**

And I will restore to you the years that the locust hath eaten, the cankerworm, and the caterpiller, and the palmerworm, my great army which I sent among you.

Why: Restitutio in integrum is restoration to the previous condition, parties restored to their prior situation. The verse is restoration to wholeness itself — the eaten years restored — spoken by the LORD (v.27: 'I am the...

## RESTITUTION.

In maritime law.

When a portion of a ship’s cargo is lost by Jettison, and the remainder saved, and the articles so lost are replaced by a general con- tribution among the owners of the cargo, this Is called "restitution.”

In practice. The return of something to the owner of it or to the person entitled to

It,' upon the reversal or setting aside of the judgment or order of court under Which It was, taken from him. I-Iaebler v. Myers, 132

N. Y. 363, 30 Ni E. 063,16 L. R. A. 688. 28 Am. St Rep. 589; Gould v. McFall, 118 Pa. 456, 12 Atl. 336, 4 Am. St. Rep. 606; First Nat Bank v. Avery Planter Co., 69 Neb. 329, 95 N. ,W, 624, 111 Am. St Rep. 541.

If, after money has been levied under a writ of execution, the judgment be reversed by writ of error, or set aside, the party against whom the execution was sued out shall have restitution. 2 Tidd, Pr. 1033; 1 BurrUl, Pr. 292. So, on conviction of a fel- on, immediate restitution of such of the goods stolen as are brought into court will be ordered to be made to the several prosecutors. A Steph. Comm. 434.

;Ia equity; Restitution Is the restoration of both parties to their original condition, (when practicable,) upon the rescission of a contract for fraud pr similar cause.

—Restitution of conjugal rights. In Eng- lish ecclesiastical law. A species of matrimoni- al cause or suit which Is brought whenever ei- ther a husband or wife Is guilty of the injury of subtraction, or lives separate from the other without any sufficient reason; in which cast the ecclesiastical jurisdiction will compel them to come together again, if either party be weak enough to desire it, contrary to the inclination of the other. 3 Bl. Comm. 94. — Restitution of minors. In Scotch law. A minor on at- taining majority may obtain relief against a deed previously executed by him, which may be held void or voidable according to circumstan- ces. This it called “restitution of mi non." Bell. — Writ of restitution. In practice. ▲ writ which lies, after the reversal of a judg- ment, to restore a party to all that be has lost by occasion of the judgment 2 Tidd, Pr. 1186.

RESTITUTIONS EXTRACT! AB EC- CliESlA. A writ to restore a man to the church, which he had recovered for his sanctuary, being suspected of felony. Reg. Orlg. 69.

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**[Law] — Law**

**[Law: restitution on reversal of judgment]**

On reversal, the successful appellant is entitled to restitution of whatever was taken under the erroneous judgment.

Why: The entry's practice sense defines restitution as the return of what was taken under a reversed judgment (citing Haebler v. Myers); the note states the appellate doctrine — the judgment's reversal unwinds its fruits....

**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: Restitution is the return of what was taken to the owner. The verse is the theft-restitution rule itself: five oxen for an ox, four sheep for a sheep — restoration measured to the loss.

## RESTITUTIONE TEMPORAL IUM.

A

writ addressed to the sheriff, to restore the temporalities of a bishopric to the bishop elected and confirmed. Fltzh. Nat. Brev.

5e apparatus — Not carried into the 5th edition (1979).

## RESTRAIN.

To limit, conflue, abridge, narrow down, or restrict.

To prohibit from action; to put compul- sion upon; to restrict; to hold or press back. To enjoin, (in equity.)

5e apparatus — Carried into the 5th edition (1979).

## RESTRAINING ORDER.

An order In the nature of an injunction. See Order.

5e apparatus — Carried into the 5th edition (1979).

## RESTRAINING POWERS.

Restric- tions or limitations imposed upon the exer- cise of a power by the donor thereof.

5e apparatus — Carried into the 5th edition (1979).

## RESTRAINING STATUTE.

A statute which restrains the common law, where It is too lax and luxuriant. 1 Bl. Comm. 87. Statutes restraining the powers of corporations in regard to leases have been so called in England. 2 Bl. Comm. 319, 320.

5e apparatus — Not carried into the 5th edition (1979).

## RESTRAINT.

Confinement, abridgment, or limitation. Prohibition of action; holding or pressing back from action. Hindrance, confinement, or restriction of liberty.

“What, then, according to a common under*- standing, is the meaning of the term ‘restraint?’ Does it imply that the limitation, restriction, or confinement must be imposed by

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those who are in possession of the person or thing which is limited, restricted, or confined, or is the term satisfied by a restriction created by the applica- tion of external force? If, for example, a town be besieged, and the inhabitants confined within its walls by the besieging army, if, in attempt- ing to come out, they are forced back, would it De inaccurate to say that they are restrained within those limits? The court believes that it wopld not; and, if it would not, then with equal propriety may it be said, when a port is blockaded, that the vessels within are confined, or restrained from coming out. The blockading force ia not in possession of the vessels inclosed in the harbor, but it acts upon and restrains them. It is a vis major, applied directly and effectually to them, .which prevents them from coming out of port. This appears to the court to be, in correct language, ‘a restraint,' by the power imposing the blockade ; and when a ves- sel, attempting to come out, is boarded and turned back, this restraining force is practical- ly applied to such vessel.” Olivers v. Union Ins. Co., 3 Wheat 189. 4 I* Ed. 365.

The terms “restraint” and “detention of prin- ces,” aa nsed in policies of marine insurance, have the same meaning,— that of the effect of superior force, operating directly oh the vessel. So long as a ship Is nnder restraint, so long she is detained ; and, whenever she is detained, she is nnder restraint Richardson v. Insur- ance Co.. 6 Mass. 102, 4 Am. Doc. 92.

—Restraint of marriage. A contract, cov- enant bond, or devise is “in restraint of mar- riage" when its conditions unreasonably hamper or restrict the party’s freedom to marry, or his choice, or unduly postpone the time of his mar- riage.—Restraint of trade. Contracts or combinations in restraint of trade are snch a a tend or are designed to eliminate or stifle com- petition, effect a monopoly, artificially main- tain prices, or otherwise hamper or obstruct the courae of trade and commerce as it would be carried on if left to the control of natural and economic forces. See D. S. v. Trans-Missouri Freight Ass’n, 166 U. S. 290. 17 Sup. Ct. 540, 41 £. Ed. 1007: Hodge v. Sloan, 107 N. Y. 244, 17 N. E. 335, 1 Am. St. Rep. 816. With reference to contracts between individuals, a re- straint of trade is said to be "general” or "spe- cial.” A contract which forbids a person tu employ his talents, industry, or capital in any undertaking within the limits of the state or country is in “general’' restraint of trade; if it forbids him to employ himself in a designated trade or business, either for a limited time or within a prescribed area or district, it is ia “special” restraint of trade. See Holbrook v. Waters, 9 How. Prac. (N. Y.) 337.— Restraint on alienation is where property is given to a married woman to her separate use, without power of alienation.

5e apparatus — Carried into the 5th edition (1979).

## RESTRICTION.

In the case of land reg- istered under the English land transfer act. 1875, a restriction is an entry on the register made on the application of the registered proprietor of the land, the effect of which is to prevent the transfer of the land or the creation of any charge upon it, unless notice of the application for a transfer or charge lk

sent fey post to a certain, address, or unless the consent of a certain person or persons to the transfer or charge Is obtained, or unless some other thing is done. Sweet.

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## RESTRICTIVE INDORSEMENT.

An

Indorsement may be so worded as to restrict the further negotiability of the Instrument, and It is then called a “restrictive indorse- ment” Thus, “Pay the contents to J. 8. only,” or “to J. S. for my use,” are restric- tive indorsements, and pu,t an end to the ne- gotiability of the paper. 1 Daniel, Neg. Inst I 698.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-206 — restrictive indorsement]**

A restrictive indorsement limits further negotiation — e.g., 'for deposit only' — and gives the indorsee only the stated rights.

Why: The entry defines the indorsement that 'puts an end to the negotiability of the paper'; § 3-206 codifies its effect. Directly states the Code section for the defined form.

## RESULT.

In law, a thing is said to re- sult when, after having been Ineffectually or only partially disposed of, it comes back to its former owner or his representatives. Sweet .

— Resulting trust. See Tbu 8T. — Resulting

use. See Use. .

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: purchase-money resulting trust]**

The flagship is the purchase-money resulting trust: where one pays the price for property conveyed to another, equity presumes a trust for the payor.

Why: The entry cross-refs resulting trust; the purchase-money presumption is the doctrine's central application — the resulting trust equity infers from payment. The essential trusts content.

## RESUMMONS.

In practice. A second summons. . The calling a person a second time to answer an action, where the first summons is defeated upon any occasion; as

the death of a party, or the like. Cowell.

•

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RESUMPTION.

In old English law. The taking again Into the king’s hands such lands or tenements as before, upon false sug- gestion, or other error, he had delivered to the heir, or granted by letters patent to any man. Cowell. '

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## RESURRENDER.

Where copyhold land has been mortgaged by surrender, and the mortgagee has been admitted, then, on the mortgage debt being paid off, the mortgagor is entitled to have the land reconveyed to him, by the mortgagee surrendering It to the lord to' hls use. This is called a “resurren- der.” 2 Dav. Conv. 1332n.

5e apparatus — Carried into the 5th edition (1979).

## RETAIL.

To sell by small parcels, and pot in the gross. To sell in small quantities. State v. Lowenhaught, 11 Lea (Tenn.) 13; Bridges v. State, 37 Ark. 224; McArthur v. State, 69 Ga. 444; Com. v. Kimball, 7 Mete. (Mass.) 308.

—Retailer of merchandise. A merchant who buys. articles in gross or merchandise in large quantities, and sells the same by single articles or in small quantities.

5e apparatus — Not carried into the 5th edition (1979).

## RETAIN.

In practice. To engage the Services of an attorney or counsellor to man- age a cause. See Betaines, 2.

—Retaining a oanse. In English practice. The act of one of the divisions of the high court pf justice in retaining jurisdiction of a cause wrongly brought in that division instead of another. Under' the judicature acts of 1873 and 1873, this may be done, in some oases, in the discretion of the court or a judge.— Retaining fee. A fee given to connael on engaging his services for the trial of the cause.— Retaining See Lien. . ; .

RETAINER. 1. The right of retainer' is the right which the executor or administra- tor of a deceased person has to retain out of the assets sufficient to pay any debt due to him from the deceased In priority to the oth- er creditors whose debts are of equal degree. 3 Steph. Comm. 263. Miller v. Irby, 63 Ala. 483 ; Taylor v. Deblois, 23 Fed. Cas. 765.

2. In English practice, a "retainer,” as applied to counsel, Is commonly used to signify a notice given to a counsel by an attorney oil behalf of the plaintiff or defendant In an ac ' tlon, in order to secure hls Services as advo- cate when the cause comes on for trial. Bolthouse. Agnew v. Walden,- 84 Ala. 502,' 4 South. 672 ; Blackman v. Webb, 38 Kan. 668, 17 Pac. 404. ' ’ •

3. A servant, not menial or familiar,— that' Is, not continually dwelling In tbu house o i hls master, but only wearing hls livery, an<^ attending sometimes upon special occasions, —is, in old English usage, called a “retail-, er.” Cowell.

—General retainer, A general retainer of an attorney or solicitor “merely gives a right to expect professional service when requested, bnt none which is not reqnested. • It binds the person retained not to take a fee from another against his retainer, but to do nothing except what he is asked to do, and for this he is to be distinctly paid.” Rhode Island Exch. Bank y. Hawkins, 6 R. I.' 206. Special retainer. An engagement or retainer of an attorney or solicitor for a special and designated purpose1! as, to prepare and try a particular case. Agl

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new v. Walden, 84 Ala. 502, 4 South. 672.

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**[Law] — Law**

**[Law: attorney's retaining lien]**

The attorney's retaining lien secures fees: the lawyer may retain the client's papers and funds until paid.

Why: The entry cross-refs 'Retaining See Lien'; the retaining lien states what the lawyer retains and why — the security behind the retainer. Modest but genuine.

## RETAKING.

The taking one’s ’goods, from another, who without right has taken! possession thereof. 1 ■ '><

, 1 ’ |' '

RETALIATION: The lex taOonU, (q. «.>

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RETALLIA.

In old English law. Retadl; the cutting up again, or division of a com. modify into smaller parts. >

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5e apparatus — Not carried into the 5th edition (1979).

## RETENEMENTUM.

In old English lawJ Restraint; detainment; withholding.

. RETENTION. In Scotch law. A species of Hen; the right to retain possession of ' * chattel until the lienor is satisfied of hls claim upon the article Itself or Its owner, i

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RETINENTIA.

A retinue, or persons re- tained by a; prince or nobleman. Cowell!

* ; . . * ■ RETIRE. As applied to bills of exchange,, this word is ambiguous. It is commoilly used of an Indorser who takes up a bill by handing the .amount to a transferee,' after which the Indorser holds the Instrument wills all his remedies intact. Bnt it is sometimes used of an: acceptor, by whom, when a bill is taken up' or retired at. maturity, it Is iltti effect paid, and all the remedies on lit ex tint* guisbed. Byles, Bills, 215, See Elsam'w*. Denny, 16 C. B. 94. . .: y:U

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RETONSOR.

L. Lat In old English law. A clipper of money. Fleta, lib. 1, c. 20, { 122.

5e apparatus — Not carried into the 5th edition (1979).

## RETORNA BREVTUM.

The return of wrltB. The Indorsement by a sheriff or other officer of his doings upon a writ.

5e apparatus — Not carried into the 5th edition (1979).

## RETORNO HABENDO.

A writ that lies for the distrainor of goods (when, on re- plevin brought, he has proved his distress to be a lawful one) against him who was so dis- trained, to have them returned to him ac- cording to law, together with damages and COBtB. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## RETORSION.

In international law. A species of retaliation, which takes place where a government, whose citizens are sub- jected to severe and stringent regulation or harsh treatment by a foreign government, employs measures of equal severity and harshness upon the subjects of the latter gov- ernment found within Its dominions. See Vattel, lib. 2, c. 18, f 341.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: retorsion vs. reprisal in international law]**

Retorsion is distinguished from reprisal: retorsion answers unfriendly acts with lawful unfriendly acts, while reprisal answers a wrong with otherwise-unlawful coercion.

Why: The entry defines retorsion via Vattel; the retorsion/reprisal distinction is the international-law classification the definition belongs to. Complements REPRISALS' Charter note with the doctrinal boundary.

**[Scripture] — Scripture**

**[Exodus 21:24, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot.

Why: Retorsion is retaliation in international law — measure for measure against a foreign government's harshness. The lex talionis is retaliation's archetype: like for like, the measure returned.

## RETOUR.

In Scotch law. To return a Writ to the office in chancery from which it issued.

5e apparatus — Not carried into the 5th edition (1979).

## RETOUR OF SERVICE.

In Scotch law. A certified copy of a verdict establishing the legal character of a party as heir to a de- cedent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RETOUR SANS FRAIS.

Fr. In French iaw. A formula put upon a bill of exchange to signify that the drawer waives protest and will not be responsible for costs arising thereon. Arg. Fr. Merc. Iaw, 573.

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RETOUR SANS PROTfiT. Fr. Return without protest. A request or direction by a drawer of a bill of exchange that should the bill be dishonored by the drawee, It may be returned without protest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RETRACT.

To take back. To retract an offer is to withdraw it before acceptance, which the offerer may always do.

RETRACTATION, in probate practice, is a withdrawal of a renunciation, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-205 — firm offer]**

The revocability rule has firm-offer and option-contract exceptions: a merchant's signed writing holding an offer open is irrevocable for the stated time.

Why: The entry states the offer 'may always' be withdrawn before acceptance; the firm-offer exception states the Code's limit on that rule — the doctrine that qualifies the definition. Genuine operative limit.

## RBTRACTO O TANTEO.

In Spanish iaw. The right of revoking a contract of sale ; the right of redemption of a thing sold. White, New Itecop. b. 2, tit 13, c. 2, { 4.

5e apparatus — Not carried into the 5th edition (1979).

## RETRACTUS AQUAE.

Lat. The ebb or return of a tide. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RETRACTUS FEUD AXIS.

L. Lat. In old Scotch law. The power which a superior possessed of paying off a debt due to an ad- judging creditor, and taking a conveyance to the adjudication. BelL

5e apparatus — Not carried into the 5th edition (1979).

## RETRAIT.

Fr. In old French and Ca- nadian law. The taking back of a fief by the seignior, in case of alienation by the vassal. A right of pre-emption by the seignior, in case of sale of the land by the grantee.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: right of first refusal / pre-emption]**

The modern analogue is the right of first refusal — a pre-emptive right on sale, now contractual rather than feudal.

Why: The entry defines the seignior's pre-emption on the vassal's alienation; the contractual right of first refusal is the same device in modern property law. Modest genuine lineage.

**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: Retrait (lignager) is the family's right to take back land the kinsman sold — pre-emption/redemption by blood. Leviticus 25:25 is its direct ancestor: the kin redeeming what the brother sold.

## RETRAXIT.

Lat In practice. An open and voluntary renunciation by a plain- tiff of his suit in court, made when the trial is called on, by which he forever loses his action, or is barred from commencing anoth- er action for the same cause. 3 Bl. Comm. 296; 2 Archb. Pr. K. B. 250.

A retraxit is the open, public, and volun- tary renunciation by the plaintiff, in open court, of his suit or cause of action, and if this is done by the plaintiff, and a Judgment entered thereon by the defendant, the plain- tiff’s right of action Is forever gone. Code Qa. 1882, | 3445. And see D. S. v. Parker, 120 U. S. 89, 7 Sup. Ct. 454, 30 L. Ed. 601; Pethtel v. McCullough, 49 W. Va. 520, 39 S.

E. 199; Westbay v. Cray, 116 Cal. 660, 48 Pac. 800; Russell v. Rolfe, 50 Ala. 57; Low- ry v. McMillan, 8 Pa. 163, 49 Am. Dec. 501; Broward v. Roche, 21 Fla. 477.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: retraxit vs. nonsuit; dismissal with prejudice]**

Retraxit is the ancestor of dismissal with prejudice: unlike a nonsuit, it forever bars another action for the same cause.

Why: The entry defines retraxit as barring another action 'for the same cause'; the retraxit/nonsuit distinction — with/without prejudice — is the doctrine the definition encodes. The essential procedure content.

## RETREAT TO THE WALL.

In the law

relating ter homicide in self-defense, this phrase means that the party must avail him- self of any apparent and reasonable avenues of escape by which his danger might be avert- ed, and the necessity of slaying his assailant avoided. People v. lams, 57 Cal. 120.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: duty to retreat vs. stand-your-ground]**

The retreat rule's modern counterpoint is stand-your-ground: no duty to retreat before using deadly force in self-defense.

Why: The entry defines the retreat-to-the-wall requirement in self-defense homicide; stand-your-ground is the modern jurisdiction-split on exactly that requirement. Genuine: the live doctrinal divide over the defined rule.

## RETRIBUTION.

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This word is some- times used in law, though not commonly in modern times, as the equivalent of “recom- pense,” or a payment or compensation for services, property, use of an estate, or other value received.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 12:19, KJV]**

Vengeance is mine; I will repay, saith the Lord.

Why: Retribution is recompense, requital — repayment in kind. Paul quotes the LORD's own reservation of it: vengeance is mine, I will repay — retribution as God's prerogative, quoted as his speech.

## RETRO.

Lat Back; backward; behind. Retrofeodum, a rereflef, or arriere fief. S pel- man.

RETROACTIVE had the same meaning as "retrospective," (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## RETROCESSION.

In the civil law. When the assignee of heritable rights con- veys his rights back to the- cedent, it is called a “retrocession.” Ersk. Inst. 3, 5, 1.

5e apparatus — Not carried into the 5th edition (1979).

## RETROSPECTIVE.

Looking back; con- templating what is past'

— Retrospective law. A law which looks backward or contemplates the past; one which is made to affect acts or facts transpiring, or rights accruing, before it came into force. Ev- ery statute which takes away or impairs vested rights acquired under existing laws, or creates a new obligation, imposes a new duty, or at- taches a new disability in respect to transac- tions or considerations already past, must be deemed retronpective. See Ex Post Facto. And see Deland v. Platte Co., (C. C.) 54 Fed. 832; Poole v. Fleeger, 11 Pet 198, 9 L. Ed. 680: Sturstes v. Carter, 114 U. S. 511, 5 Sup. Ct 1014, 29 L. Ed. 240; Merrill V. Sherburne,

1 N. H. 213. 8 Am. Dec. 52 ; Bell v. Perkins, Peck (Tenn.i 260, 14 Am. Dec. 745; Evans v. Denver, 20 Colo. 193, 57 Pac. 690.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. art. I, §§ 9, 10 — ex post facto]**

The Constitution bars ex post facto laws — the criminal-law form of retrospectivity: 'No ... ex post facto Law shall be passed.'

Why: The entry defines retrospective laws impairing vested rights and cross-refs Ex Post Facto; the Clauses are the constitutional prohibition of the criminal form, quoted briefly and exactly. Direct.

# B

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**BETTE.**

L. Ft. An accusation or charge. St. Westm. 1, c. 2.

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# R

**RETURN.**

The act of a sheriff, con- stable, or other ministerial officer, in de- livering back to the court a writ, notice, or other paper, which he was required to serve or execute, with a brief account of his do- ings under the mandate, the time and mode of service or execution, or his failure to ac- complish it, as the ease may be. Also the indorsement made by the officer upon the writ or other paper, stating what he has done under it, the time and mode of service, etc.

The report made by the court, body of magistrates, returning board, or other au- thority charged with the official counting of the votes cast at an election.

In English practice, the election of a mem- ber of parliament is called his “return.”

—False return. A return to a writ, in which the officer charged with it falsely reports tnat he served it, when he did not, or makes some other false or incorrect statement, whereby in- jury results to a person interested. State v. Jenkins, 170 Mo. 16, 70 S. W. 152.— General return-day. The day for the general return of all writs of summons, subpoena, etc., running to a particular term of the court.— Return- book. The book containing the list of mem- bers returned to the house of commons. May, Pari. Pr.— Return-day. The day named tn a writ or process, upon which the officer is re- quired to return it.— Return Irreplevisable. A writ allowed by the statute of Westm. 2, c. 2, to a defendant who had had judgment upon verdict or demurrer in an action of replevin, or after the plaintiff had, on a writ of second deliverance, become a second time nonsuit in such action. By this writ the goods were re- turned to the defendant, and the plaintiff was restrained from suing out a fresh replevin. Previously to this statute, an unsuccessful plain- tiff might bring actions of replevin in infinitum, in reference to the same matter. 3 Bl. Comm. 150. — Return of premium. The repayment of the whole or a ratable part of the premium paid for a policy of insurance, upon the cancel- lation of the contract before the time fixed for its expiration.— Return of writs. In prac- tice. A short account, in writing, made by the sheriff, or other ministerial officer, of the man- ner in which he has executed a writ Steph.

PI. 24.

5e apparatus — Carried into the 5th edition (1979).

**RETURNABLE.**

In practice. To be re- , turned; requiring a return. When a writ Is said to be “returnable" on a certain day, It is meant that on that day the officer must return It

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## RETURNING BOARD.

This is the offi- cial title in some of the states of the board of canvassers of elections. TION. Coming back to England before the term of punishment Is determined.

5e apparatus — Carried into the 5th edition (1979).

## RETURNING OFFICER.

The official who conducts a parliamentary election in

England. The sheriff in counties, and the mayor in boroughs. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## RETURNUM AVERIORUM.

A judi- cial writ, similar' to the retorno habcnda. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RETURNUM IRREPLEGIABILE.

A

Judicial writ addressed to the sheriff for the final restitution or return of cattle to the owner when unjustly taken or distrained, and so found by verdict It is granted after a nonsuit in a second deliverance. Reg. Jud. 27.

5e apparatus — Not carried into the 5th edition (1979).

## REUS.

Lat In the civil and canon law. The defendant in an action or suit

A person judicially accused of a criine; a person criminally proceeded against. Halli- fax. Civil Law, b. 3, c. 13, no. 7.

A party to a suit whether plaintiff or de: fendant; a litigant. This was the ancient sense of the word. Calvin.

A party to a contract. Reus stipulandi, a party stipulating; the party who asked the question in the form prescribed for stlpt* lations. Reus promittendi, a party promis- ing; the party who answered the question.

•

Reus exeipiendo fit actor. The defend- ant, by excepting or pleading, becomes a plaintiff; that is, where, instead of simply denying the plaintiff's action, he sets up some new matter In defense, he is bound to establish it by proof, just as a plaintiff is bound to prove his cause of action. Bonnier, Tr. des Preuves, |S 152, 320; Best, Bv. p. 294, § 252.

Rous laessa majestatis punitur ut per- eat nuns ne pereaat omnes. A traitor is punished that one may die lest all perish. 4 Coke, 124.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: Roman stipulatio]**

The reus stipulandi and reus promittendi are the parties to the Roman stipulatio — the formal question-and-answer contract.

Why: The entry defines the contract-party senses; the stipulatio is the Roman institution those terms belong to. Modest genuine Roman-law content for the defined terms.

## REVE.

In old English law. The bailiff of a' franchise or manor ; an officer in parish- es within forests, who marks the common- able cattle. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## REVE MOTE.

In Saxon law. The court of the reve, reeve, or shire reeve. 1 Reeve, Eng. Law, 6.

5e apparatus — Not carried into the 5th edition (1979).

## REVEL.

A criminal complaint charged that the defendant did “revel, quarrel, com- mit mischief, and otherwise behave in a disorderly manner.” Held, that the word “revel” has a definite mennlng; i. e., “to be- have in a noisy, boisterous manner, like a bacchanal.” In re Began, 12 R. I. 309.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 5:21, KJV]**

drunkenness, revellings, and such like

Why: The entry is the criminal complaint of reveling — noisy, boisterous, bacchanalian disorder. Paul lists 'revellings' among the works of the flesh whose doers shall not inherit the kingdom of God.

## REVELAND.

The land which in Domes- day is said to have been “thane-lan<j,” and afterwards converted into “reveland.” It seems to have been land which, having re- verted to the king after the death of the thane, who had it for life, was not granted out to any by the king, but rested in charge

' REVEL#

lilionthe Account of the reve or bailiff of the manor. Spel. Feuds, c. 24.

' BhVtiLI. Sports of dancing, masking, etc., formerly' ■ used In princes’ courts, the inns of court, and noblemen's houses, com- monly performed by night. . There was an oiBcer to order and supervise them, who was ^titled the “master of . the revels.” CowelL

.1): •• i .

, REVENQICATION. In the civil law. The right of a vendor to^reclaim goods sold out of the possession of the purchaser, where the price was not paid. Story, Confl. Laws, {,.401. See Benedict v. Schaettle, 12 Ohio St 520; Ellis v. Davis, 109 U. S. 485, 3 Sup.

CL 827, 27 L. Ed. 1006.

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**[TEXT INCOMPLETE — scan limitation]**

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## REVENUE.

As applied to the income of a government, this Is a broad and general term, tncludtng all public moneys which the state collects and receives, from whatever source and In whatever manner. U. S. v. Bromley, 12 How. 99, 13 L. Ed. 905; State V: School Fund Com’rs, 4 Kan. 268 ; Fletcher

V. Oliver, 25 Ark. 295.

"It also designates the Income of an indi- vidual or 'private corporation.

—Public revenue. The revenue of the gov- ernment of the state or nation ; sometimes, per- haps, that of a municipality. — Revenue law. ^ny law which provides for the assessment and collection of a tax to defray the expenses of the government is a revenue law. Such legis- lation is commonly referred to under the gener- al term “revenue measures," and those measures Include all the laws by which the government provides means for meeting its expenditures. Peyton v. Bliss, Woolw. 173, Fed. Cas. No. 11,- 055; The Nashville, 17 Fed. Cas. 1178; Twin City Nat. Bank v. Nebeker, 3 App. D. C. 190. — Revenue aide of the exchequer. That juris- diction of the court of exchequer, or of the ex- chequer division of the high court of justice, by which it ascertains and enforces the proprietary rights of the crowu against the subjects of the realm. . The practice in revenue . cases is not affected by the orders and rules tinder the judi- cature act of 1875. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 7, cl. 1 — Origination Clause]**

Revenue bills must originate in the House: 'All Bills for raising Revenue shall originate in the House of Representatives.'

Why: The entry defines revenue and revenue law; the Origination Clause is the Constitution's procedural rule for revenue legislation, quoted briefly and exactly. The genuine public-law content.

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Quote: "Cash rules everything around me / C.R.E.A.M., get the money / Dollar, dollar bill, y'all" — hip-hop's definitive statement on the pursuit of money-as-revenue; the acronym itself names the rule that revenue governs conduct. Black's extends 'revenue' to individual income, which is exactly the song's subject.

Why: Added because the hook is verbatim-certain and the track is the genre's canonical money song; Black's 'income of an individual' sense maps cleanly onto the lyric's subject. No forcing.

## REVERSAL.

The annulling or making VQld a judgment on account of some error or irregularity. Usually spoken of the action of an appellate court

la International law. A declaration by Which a sovereign' promises that he will ob- serve a

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certain order or certain conditions, which have been once established, notwith- standing any changes that may happen to cause a deviation therefrom. Bouvier.

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## REVERSE, REVERSED.

A term fre- quently used in the Judgments of an appel- late court, In disposing of the case before It. It then means “to set aside ; to annul ; to va- cate.” Lalthe v. McDonald, 7 Kan. 254.

" REVERSER. In Scotch law. The pro 'prletor of an estate who grants a wadset (or mortgage) of his lands, and Who has'u‘t*lglit,

on repayment of the money advanced to him, to be replaced in his right. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## REVERSIBLE ERROR.

See Eaaoa.

5e apparatus — Carried into the 5th edition (1979).

## REVERSIO.

L. Lat. In old English law. The returning of land to the donor FI eta, lib. 8, oc. 10, 12.

Reversio terra est tanquom terra re- vertena in possessions donatori, slve fc.se redibus suis post donum fiuitusn. Co.

Litt 142. A reversion of land is, as It were, the return of the land to the possession of the donor or his heirs after the termina- tion of the estate granted.

5e apparatus — Not carried into the 5th edition (1979).

## REVERSION.

Ia real property law.

A reversion is the residue of an estate left by operation of law In the grantor or his heirs, or in the heirs of a testator, com- mencing In possession on the determination of a particular estate granted or devised. How. St Mich.. 1882, { 5528; Civ. Code Cal. { 768; 2 Bl. Comm. 175. And see Barber v. Brundage, 50 App. Dlv. 123, 63 N. Y. Supp. 347 ; Payn v. Beal, 4 Denlo (N. Y.) 411; Powell v. Bailroad Co., 16 Or. 33, 16 Pac. 863, 8 Am. St. Rep. 251; Wingate v. James, 121 Ind. 69, 22 N. E. 735; Byrne v. Weller, 61 Ark. 366, 33 S. W. 421.

When a person has an Interest in lands, and grants a portion of that Interest or. In other terms, a less estate than he has in himself, the possession of those lands shall, on the determi- nation of the granted interest or estate, return or revert to the grantor. This interest is what is called the "grantor’s reversion,” or, more properly, his "right of reverter,” which, how- ever, is deemed an actual estate in the land. Watk. Conv. 16.

Where an estate Is derived, by grant or other- wise, out of a larger one, leaving in the original owner an ulterior estate immediately expectant on that which Is so derived, the ulterior interest is called the “reversion." 1 Steph. Comm. 290.

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A reversion is the residue of an estate left in the grantor, to commence in possession after the determination of some particular estate; while a remainder is an estate limited to take effect and be enjoyed after another estate is determin- ed. Todd v. Jackson, 26 N. J. Law, 525.

In personalty. “Reversion” is also used to denote a reversionary Interest; e. g., an interest In personal property subject to the life Interest of some other person.

In Scqteh law. A reversion is a right of redeeming landed property which has been either mortgaged or adjudicated to secure the payment of a debt. In the former case, the reversion is called “conventional ;” in the latter case, it is called "legal;” and the period of seven years allowed for redemption Is called the “legal." Bell; Paterson.

—Legal reversion. In Scotch law. The peri- od within which a proprietor is at liberty to re- deem land adjudged from him for debt

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Law] — Law**

**[Law: reversion vs. remainder]**

A reversion arises by operation of law in the grantor; a remainder is created in a third party — the fundamental future-interests divide.

Why: The entry defines the reversion as the residue 'left by operation of law in the grantor'; the reversion/remainder distinction states the classification the definition belongs to, complementing REMAINDER's Shelley's Ru...

## REVERSIONARY.

That which Is to be enjoyed In reversion.

—Reversionary interest. The interest

which a person has in the reversion of lands or other property. A right to the future enjoymeat of p’roperty, at present in the possession or occupation of another. Holthouse.—Reve^- ■ionary lease. One to take effect in ■ future. A second lease, to commence after the expira- tion of a former lease. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

# B

## BEYEB8IOKEB.

A person who Is en- titled to an estate in reversion. By an ex- tension of its meaning, one who is entitled to any future estate or any property in ex- pectancy.

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# R

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**REVERT.**

To revert is to return. Thus, when the owner of an estate in land has granted a smaller estate to another person, on the determination of the latter estate, the land is said to “revert” to the grantor. Sweet ■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# B

**BEVEBTEB.**

Reversion. A possibili- ty of reverter is that species of reversionary Interest which exists when the grant is so limited that it may possibly terminate. 1 Washb. Real Prop. 63. See Fobmedon lit the Revebteb.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: fee simple determinable / possibility of reverter]**

The possibility of reverter follows a fee simple determinable — 'to A so long as used for school purposes' — vesting automatically if the limitation fails.

Why: The entry defines the possibility of reverter as the reversionary interest where the grant 'may possibly terminate'; the fee simple determinable is the estate it follows. The essential future-interests pairing.

# R

**REVEST.**

To vest again. A seisin is said to revest, where it is acquired a second time by the party out of whom it has been divested. 1 Rop. Husb. & Wife, 353.

It is opposed to “divest.” The words “revest” and “divest” are also applicable to. the mere right or title, as opposed to the pos- session. Brown.

5e apparatus — Carried into the 5th edition (1979).

**REVE8TIRE.**

In old European law. To return or resign an Investiture, seisin, or. possession that has been received; to rein- vest; to re-enfeoff. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**REVIEW.**

A reconsideration; second; view or examination ; revision ; consideration for purposes of correction. Used especially of the examination of a cause by an appel- late court, and of a second investigation qf a proposed public road by a jury of viewers. See Weehawken Wharf Co. v. Knickerbocker Coal Co., 25 Misc. Rep. 309, 54 N. Y. Supp 566 ; State v. Main, 69

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Conn. 123, 37 Atl. 80, 36 L. R. A. 623, 61 Am. St. Rep. 30.

— Bill of review. In equity practice. A bill, in the nature of a writ of error, filed to procure an examination and alteration or reversal of a decree made upon a former bill, which decree has been signed and enrolled. Story, Eq. Pl. i 403.— Commission of review. In English ecclesiastical law. A commission formerly sometimes granted, in extraordinary cases, to revise the sentence of the court of delegates, when it was apprehended they had been led in- to a material error. 3 BE Comm. 67.— Court of review. In England. A court established by 1 & 2 Wm. IV. c. 56, for the adjudicating upon such matters in bankruptcy as before were within the jurisdiction of the lord chancellor. It was abolished in 1847. — Reviewing taxa- tion. The re-taxing or re-examining an attor- ney's bill of costs by the master. The courts sometimes order the masters to review their taxation, when, on being applied to for that purpose, it appears that items have heen allow- ed or disallowed on some erroneous principle, of under some mistaken Impression. 1 Archb. Pr. K. B. 55.

REVELING CHURCH ORDINANCES.'

An offense against religion punishable !ri- England by flue and- imprisonment. 4 Stepb.1 Comm. 208.' • • > ' <

REVISE, ■ To review, re-examine fori correction ; to go over a thing for the purpose) of, amending, correcting, rearranging, or otb» erwlse improving it; as, to revise statutes;: or a judgment Casey v. Homed, 5 Iowa,'< 12; Vinsant v. Knox, 27 Ark. 272; Falconer-

V. Robinson, 46 Ala. 34$. ■ ' > I

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: standards of appellate review]**

Appellate review is graded by standards: de novo for law, clearly erroneous for fact, abuse of discretion for discretionary rulings.

Why: The entry defines review as examination 'for purposes of correction' by an appellate court; the standards of review state how that correction is performed — the doctrine governing the defined function.

## REVISED STATUTES.

A body of stat- utes, which have been revised, collected, ar- ranged in order, and re-enacted as. a whoie¥ This is the legal title of the collections of compiled laws of several of the statee, agd also of the United States.. Such a volume ip, usually cited as "Rev. Stat," "Rev, St;" op., "R. S."

5e apparatus — Carried into the 5th edition (1979).

## REVISING ASSESSORS.

In English law. Two officers elected by the burgesses of non-parliamentary municipal boroughs for the purpose of assisting the ' mayor in ,re-' vising the parish burgess lists. Wharton,

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5e apparatus — Not carried into the 5th edition (1979).

## REVISING BARRISTERS.

In Eng-1 lish law. Barristers appointed to revise the1 list of voters for county and borough mem*' bers of parliament and who hold courts for that purpose throughout the comity. 8t‘ 6’ Viet. c. 18. v .

— Revising ‘barristerb’ courts. In English law. Courts held in the autumn throughout the country, to revise the list of voters for county and borough members of parliament , ,

- REVIVAL. The process of renewing the. operative force of a Judgment which has re- mained dormant or unexecuted for so long' a time that execution cannot be Issued upon; it without sbw process to reanimate it See Brier v. Traders’ Nat. Bank, 24 Wash. 695,' 64 Pac. 831; Havens v. Sea Shore Land Co., 57 N. J. Eq. 142, 41 Atl. 755.

.The act of renewing the legal force of 1 a contract or obligation, which had ceased to! be sufficient foundation for an action, on ac» count of the running of the statute of Hrol-l tatlons, by giving a new promise or acknowl- edgment of it.

5e apparatus — Not carried into the 5th edition (1979).

## REVIVE.

To renew, revivify ; to. mate one’s self liable for a debt barred by the statute of limitations by acknowledging It1;1 or for a matrimonial offense, once condoned, by .committing another. See Lindsey, v. lay- man, 37. Iowa, 207. t . . . . J

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: revival of time-barred debt by acknowledgment or part payment]**

A debt barred by limitations may be revived by the debtor's acknowledgment or part payment — restarting the limitations period.

Why: The entry defines revive as making oneself liable for a limitations-barred debt 'by acknowledging it'; the acknowledgment/part-payment rule states the doctrine's operation. Directly illuminates the defined act.

## REVIVOR, BILL OF.

In equity, prac-1 tlce. A bill filed for the purpose of reviving 0jc calling, Into operation the proceedings in .a shit , when, from some circumstance, (gs the death of the plaintiff,)' the shit had abated, . .

REVIVOR; WRIT OF. In Ebglish pm<* fled Where it became necesaary to cevlVei «>

judgment, by lapse of time, or change by death, etc., of the parties entitled or liable to execution, the party alleging himself to be entitled to execution might sue out a writ of revivor in the form given in the act, or ap- ply to the court for leave to enter a sugges- tion upon the roll that it appeared that he was entitled to have and issue execution of the judgment, such leave to be granted by the court or a judge upon a rule to show cause, or a summons, to be served according to the then present practice. C. L. P. Act, 1852, { 129.

5e apparatus — Not carried into the 5th edition (1979).

## REVOCABLE.

Susceptible of being re- voked.

REVOCATION, The recall of some pow- er, authority, or thing granted, or a de- stroying or making void of some deed that had existence until the act of revocation made it void. It may be either general, of ail acts and things done before; or special, to revoke a particular thing. 5 Coke, 90. See Wilmington City Ry. Co. v. Wilmington & B. S. Ry. Co., 8 Del. Ch. 468, 46 Atl. 12.

Revocation by act of the party is an in- tentional or voluntary revocation. The prin- cipal Instances occur in the case of author- ities and powers of attorney and wills.

A revocation in law, or constructive revo- cation, is produced by a rule of law. Ir- respectively of the intention of the parties. Thus, a power of attorney is in general re- voked by the death of the principal. Sweet

—Revocation of probate is where probate of a will, having been granted, is afterwards re- called by the court of probate, on proot or a subsequent will, or other sufficient cause.— Rev- ocation of -will. The recalling, annulling, or rendering inoperative an existing will, by some subsequent act of the testator, which may he by the making of a new will inconsistent with the terms of the first, or by destroying the old will, or by disposing of the property to which it related, or otherwise. See Boudinot v. Bradford. 2 Dali. 268, 1 L. Eld. 375; Lathrop v. Dunlop. 4 'Hun (N. Y.) 215; Carter v. Thomas, 4 Me. 342; Langdon v. Astor. 3 Doer

IN. Y.) 561 ; Graham v. Burch, 47 Minn. 171, & N. W. 697. 28 Am. St. Rep. 339 ; Gardner v. Gardiner, 65 N. H. 230. 19 Atl. 651, 8 L.

R. A. 3S3; Cutler v. Cutler. 130 N. C. 1. 40

S. E. 689. 57 L. R. A. 209, 89 Am. St. Rep. 854.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: revocation of agency authority]**

The paradigm is agency: a principal may revoke the agent's authority at any time, remaining liable for breach of the agency contract.

Why: The entry's body carries the REVOCATION definition (recall of power or authority); the agency-revocation rule states its operative content — authority is revocable at will, with contract liability surviving. Sourced f...

## REVOCATIONS PARLIAMENTI.

An

ancient writ for recalling a parliament. 4 Inst 44.

5e apparatus — Not carried into the 5th edition (1979).

## REVOCATUR.

Lot. It is recalled. This is the term, in English practice, appropriate to signify that a judgment Is annulled or set aside for error in fact ; if for error iu law, it is then said to be reversed.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: writ of error coram nobis]**

The fact/law divide survives in coram nobis — the writ correcting errors of fact not appearing of record.

Why: The entry defines revocatur as annulment 'for error in fact' (vs. reversal for error in law); coram nobis is that fact-error writ's modern form. Genuine lineage for the defined distinction.

## REVOKE.

To call back; to recall; to annul an act by calling or taking it back.

5e apparatus — Carried into the 5th edition (1979).

## REVOLT.

The endeavor of the crew of a vessel, or any one or more of them, to overthrow the legitimate authority of her

commander, with intent to remove him from his command, or against his will to take possession of the vessel by assuming the government and navigation of her, dr by transferring their obedience from the law- ful commander to some other person. Unit- ed States v. Kelly, 11 Wheat. 417, 6 L. Ed. 508.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frank Lloyd, Mutiny on the Bounty, 1935]**

(paraphrase) The 1935 film dramatizes the entry's definition almost word for word: the crew of the Bounty overthrowing the legitimate authority of their commander, Captain Bligh, and taking the vessel by assuming its government. (paraphrase)

Why: The entry defines maritime revolt as the crew's endeavor to overthrow the commander's authority; the film is the iconic dramatization of that exact fact pattern. Paraphrase.

## REWARD.

A recompense or premium offered by government or an individual in return for special or extraordinary services to be performed, or for special attainments or achievements, or for some act resulting to the benefit of the public; as, a reward for useful inventions, :for the discovery and apprehension of criminals, for the restora- tion of lost property. See Kinn v. First Nat Bank, 118 WIs. 537, 95 N. W. 969, 99 Am. St. Rep. 1012; Campbell v. Mercer, 108 Ga. 103, 33 S. E. 871.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: reward offers as unilateral contracts]**

A reward offer is the classic unilateral contract — accepted by performance, and in most jurisdictions only with knowledge of the offer.

Why: The entry defines the reward as a premium 'offered' for acts to be performed; the unilateral-contract analysis states the offer's contractual character and how it is accepted. The essential contract-law content.

**[Scripture] — Scripture**

**[Revelation 22:12, KJV]**

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And, behold, I come quickly; and my reward is with me, to give every man according as his work shall be.

Why: Reward is recompense for services, achievements, or acts benefiting the public. Christ's own word: his reward with him, to every man according as his work shall be.

## REWME.

In old records. Realm, or kingdom.

5e apparatus — Not carried into the 5th edition (1979).

## REX.

Lat The king. The king regard- ed as the party prosecuting in a criminal ac- tion; as In the form of entitling such ac- tions, “Rex v. Doe.”

Rex debet esse sub lege quia lex faclt

regem. The king ought to be under the law, because the law makes the king. 1 BL Comm. 239.

Rex est legalis et politicos. Lane, 27. The king is both a legal and political per- son.

Rex est lex vlvens. Jenk. Cent 17. The king is the living law.

Rex est major singulis, minor nnft- versls. Bract 1. 1, c. 8. The king is great- er than any single person, less than all.

Rex hoe solum non potest facere quod non potest injuste agere. 11 Coke, 72. The king can do everything but an injustice.

Rex non debit esse snb homine, sed sub Deo et sub lege, quia lex facit re- gem. Bract, fol. 5. The king ought to be under no man, but under God and the law, because the law makes a king. Broom, Max. 47.

Rex non potest peceare. The king can- not do wrong; the king can do no wrong. 2 Rolle, 304. An ancient and fundamental principle of the English constitution. Jenk. Cent. p. 9, case 16; 1 Bl. Comm. 246.

Rex nnnquam morltur. The king never dies. Broom. Max. 50; Branch, Max. (5th Ed.) 197 ; 1 Bl. Comm. 249.

5e apparatus — Not carried into the 5th edition (1979).

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### [Law] — Law

**[Maxim: Rex debet esse sub lege quia lex facit regem — the king ought to be under the law, because the law makes the king]**

The entry's maxim states the rule-of-law root: the king is under the law because the law makes the king.

Why: The maxim appears in the entry's own body (1 Bl. Comm. 239); it is Bracton's principle that even the sovereign is subject to law — the constitutional significance of the Rex entry. Sourced from the entry itself.

### [Scripture] — Scripture

**[Proverbs 21:1, KJV]**

The king's heart is in the hand of the LORD, as the rivers of water: he turneth it whithersoever he will.

Why: Rex is the king — including the king as the prosecuting party ('Rex v. Doe'). The verse states kingship under

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God's hand: the king's heart turned whithersoever He will.

## RHANDIR.

A part In the division of Wales before the Conquest; every township

comprehended four gavels, and every gavel had four rhandlrs, and four houses or tene- ments constituted every rhandir. Tayl. Hist. Gav. 60.

5e apparatus — Not carried into the 5th edition (1979).

## RHODIAN LAWS.

This, the earliest Code or collection of maritime laws, was for- mulated by the people of the island of Rhodes, who, by their commercial prosperity and the superiority of their navies, had ac- quired the sovereignty of the seas. Its date is very uncertain, but is supposed (by Kent and others) to be about 900 B. C. Nothing of it is now extant except the article on jettison, which has been preserved in the Roman col- lections. (Dig. 14, 2, “Lex Rhodia-de Joctu.”) Another code, under the same name, was pub- lished in more modern times, but is general- ly considered, by the best authorities, to be spurious. See Schomberg, Mar. Laws Rhodes, ST, 38 ; 3 Kent, Comm. 3, 4 ; Azuni, Mar. Law, 265-296.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Lex Rhodia de jactu — general average]**

The preserved jettison article — Lex Rhodia de jactu — is the source of general average: all contribute for the sacrifice that saved the venture.

Why: The entry notes only the jettison article survives (Dig. 14, 2); that article is general average's fountainhead — the doctrine RESTITUTION's maritime sense describes. Genuine: names the surviving article's living doct...

**[Scripture] — Scripture**

**[Jonah 1:5, KJV]**

and cast forth the wares that were in the ship into the sea, to lighten it of them.

Why: The entry notes the only extant article of the Rhodian code is on jettison (Lex Rhodia de Jactu). Jonah 1:5 is jettison in Scripture: the mariners casting the wares into the sea to lighten the ship.

## RIAL.

A piece of gold coin current for 10s., in the reign of Henry VI., at which time there were half-rials and quarter-rials or rial- farthings. In the beginning of Queen Eliza- beth’s reign, golden rials were coined at 15s. a piece; and in the time of James I. there were rose-rials of gold at 30s. and spur-rials at 15s. Lown. Essay Coins, 38.

5e apparatus — Not carried into the 5th edition (1979).

## RIBALD.

A rogue; vagrant; whore- monger; a person given to all manner of wickedness. Cowell.

. RIBBONMEN. Associations or secret so- cieties formed in Ireland, having for their object the dispossession of landlords by mur- der and fire-ralslng. Wharton.

RICHARD ROE, otherwise TROUBLE- SOME. The casual ejector and fictitious de- fendant in ejectment, whose services are no longer Invoked.

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5e apparatus — Not carried into the 5th edition (1979).

## RIOOHOME.

Span. In Spanish law. A nobleman; a count or baron. 1 White, Re- COp. 36.

5e apparatus — Not carried into the 5th edition (1979).

## RIDER.

A rider, or rider-roll, signifies a schedule or small piece of parchment an- nexed to some part of a roll or record. It is frequently familiarly used for any kind of a schedule or writing annexed to a document which cannot well be Incorporated in the body of such document. Thus, in passing bills through a legislature, when a new clause is added after the bill has passed through committee, such new clause is termed a “rider.” Brown. See, also, Cowell ; Blount ; 2 Tldd, Pr. 730; Com. v. Barnett, 199 Pa.

161, 48 Atl. 976, 55 L. R. A. 882.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: single-subject rules for legislation]**

Legislative riders are policed by single-subject rules: many state constitutions provide that no law shall embrace more than one subject.

Why: The entry defines the rider as a clause added after committee; the single-subject rule is the constitutional response to the rider practice. Genuine: the legal consequence of the defined device.

## RIDER-ROLL.

See Rider.

5e apparatus — Not carried into the 5th edition (1979).

## RIDGLING.

A half -castrated horse. Bris- co v. State, 4 Tex. App. 221, 30 Am. Rep.

162.

5e apparatus — Not carried into the 5th edition (1979).

## RIDING  ARMED.

In English law. The offense of riding or going armed with dan- gerous or unusual weapons is a misdemeanor tending to disturb the public peace by ter- rifying the good people of the land. 4 Steph. Comm. 357.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Northampton, 2 Edw. 3, c. 3]**

The offense descends from the Statute of Northampton (1328), forbidding going armed to the terror of the people.

Why: The entry defines the misdemeanor of going armed 'tending to disturb the public peace'; the Statute of Northampton is its historical source. Modest genuine lineage.

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## RIDING CLERK.

In English law. One of the six clerks in chancery who, in his turn for one year, kept the controlment books of all grants that passed the great seal. The six clerks were superseded by the clerks of records and writs.

RIDINGS, (corrupted from trithinps.) The names of the parts or divisions of York- shire, which, of course, are three only, viz., East Riding, North Riding, and West Riding.

5e apparatus — Not carried into the 5th edition (1979).

## RIEN.

L. Pr. Nothing. It appears in a few law French phrases.

— Rlen enlp. In old pleading. Not guilty. — Rien dit. In old pleading.- Says nothing, (nil dicit.) — Rien luy doit. In old pleading. Owes him nothing. The plea of nil debet.— Rians en arrere. Nothing in arrear. A plea in an action of debt for arrearages of account. Cowell.— Riens lour deust. Not their debt. The old form of the plea of nil debet. 2 Reeve, Eng. Law, 332.— Riens passe per le fait. Nothing passed by the deed. A plea by which a party might avoid the operation of a deed, which had been enrolled or acknowledged in court ; the plea of non est factum not being al- lowed in such case.— Riens per discent. Nothing by descent. The plea of an heir, where he is sued for his ancestor's debt; and has no land from him by descent, or assets in his hands. Oro. Car. 151; 1 Tidd, Pr. 645 ; 2 Tidd, Pr. 937.

5e apparatus — Not carried into the 5th edition (1979).

## RIER COUNTY.

In old English law. After-county ; i. e., after the end of the coun- ty court. A time and place appointed by the sheriff for the receipt of the king’s money after the end of his county, or county, court. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RIFLE TUM.

A coppice or thicket. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## RIGA.

In old European law. A species of service and tribute rendered to their lords by agricultural tenants. Supposed by Spel- man to be derived from the name of a cer- tain portion of land, called, in England, a “rig" or "ridge,” an elevated piece of ground, formed out of several furrows. Burrill.

5e apparatus — Not carried into the 5th edition (1979).

## RIGGING THE MARKET.

A term of the stock-exchange, denoting the practice of inflating the price of given stocks, or en- hancing their quoted value, by a system of pretended purchases, designed to give the air of an unusual demand for such stocks. See

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L. R. 13 Eq. 447.

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**[Law] — Law**

**[Law: Securities Exchange Act § 10(b); SEC Rule 10b-5 — market manipulation]**

The modern form is securities manipulation — prohibited as a manipulative or deceptive device in connection with securities transactions.

Why: The entry defines rigging as inflating prices 'by a system of pretended purchases'; § 10(b)/Rule 10b-5 prohibit exactly such manipulation. Direct: the defined practice's modern criminal/civil category.

**[Scripture] — Scripture**

**[Deuteronomy 25:13, KJV]**

Thou shalt not have in thy bag divers weights, a great and a small.

Why: Rigging the market is fraudulent manipulation of prices by pretended demand. The verse prohibits the toolkit of market fraud itself — false weights, great and small — the same genus: dishonest dealing in trade.

**[Humanity] — Humanity / Fiction & Film**

**[Martin Scorsese, The Wolf of Wall Street, 2013]**

(paraphrase) The film follows stockbrokers who inflate the price of worthless stocks through orchestrated fraud — the screen-era image of rigging a market by feigned demand. (paraphrase)

Why: Genuinely illuminates the human mechanism of the entry (feigned demand, deceitful dealing). Honest limit: the film's signature scheme is pump-and-dump via cold-calling, not the entry's specific 'pretended purchases' t...

## RIGHT.

As a noun, and taken In an ab- stract sense, the term means justice, ethical correctness, or consonance with the rules of law or the principles of morals. In this slgnlflcation it answers to one meaning of the Latin "/us,” and serveato indicate law in the abstract, considered as the foundation of ail rights, or the complex of underlying mor- al principles which impart the character of Justice to all positive law, or give it an ethi- cal content

. As a noun, and taken in a concrete sense, a right signllie8 a power, privilege, faculty, or demand, inherent in one person and inci- dent upon another. “Rights” are defined generally as "powers of free action.” And the primal rights pertaining to men are un- doubtedly enjoyed by human beings purely as such, being grounded in personality, and existing antecedently to their recognition by positive law. But leaving the attract mor- al sphere, and giving to the term a juristic content, a “right” is well defined as “a ca- pacity residing In one man of controlling, with the assent and assistance of the state» the actions of others.” Holl. Jur. 68.

The noun substantive “a right” signifies that which Jurists denominate a “faculty;” that' which resides in a determinate person, by vir- tue of a given law, and which avails against a person (or answers to a duty lying on a person) other than the person in whom it re- sides. And the noun substantive “rights” is the plural of the noun substantive "a right.” But the expression “right,” when it is used as an adjective, is equivalent to the adjective “just,” as the adverb “rightly” is equivalent to the adverb "justly.” And, when used as the abstract name corresponding to the adjective “right,” the noun substantive "right” is synon- ymous with the noun substantive “justice.” Aust. Jur. f 264, note.

- In a narrower signification, the word de- notes an Interest or title in an object of prop- erty ; a just and legal claim to hold, use, or enjoy it, or to convey or donate it, as he may please. See Co. Litt. 645a. j

The term “right,” in civil society, is defined to mean that which a man is entitled to have, or to do, or to receive from others within the limits prescribed by law. Atchison & N. R. Co,, v. Baty, 6 Neb. 40, 28 Am. Rep. 356.

That which one person ought to have or receive from another, it being withheld from1 him, or not In his possession. In this sense, “right” has the force of "claim,” and Is prop- erly expressed by the Latin “jus.” Lord Coke considers this to be the proper signification1 of the word, especially in writs and plead- ings, where an estate is turned to a right; as by discontinuance, disseisin, etc. Co. Litt' 345a.

Classification. Rights may be described as perfect or imperfect, according as their ac- tion or scope is clear, settled, and determi- nate, or is vague and unfixed.

Rights are either in personam or in rom. A right in personam is one which imposes an obligation on a definite person. A right in rem is one which Imposes an obligation on persons generally; i. e., either on all the world or on all the world except certain de- terminate persons. Thus, if I am entitled to- exdsde all persons from a given piece of' land,- 1 have a right in rem in respect of thatland ; and, if there are one or more persons, A., B., and 0., whom 1 am. not entitled to ex- clude from it, my right is still a right in rem. Sweet.

Rights may also be described as either pri- mary or secondary. Primary rights are those which can be created without reference to rights already existing. Secondary rights ean only arise for the purpose of protecting or enforcing primary rights. They are either preventive (protective) or remedial (repara- tive.) Sweet

Preventive or protective secondary righta exist in order to prevent the infringement or loss of primary rights. They are judicial When they require the assistance of a court of law for their enforcement, and extrajudi- cial when they are capable of being exercised by the party himself. Remedial or repara- tive secondary rights are also either judicial Or extrajudicial. They may further be di- vided Into (1) rights of restitution or restora- tion, which entitle the person injured to be replaced in his original position; (2) rights of enforcement, which entitle the person in- jured to the performance of an act by the per- son bound; and (3) rights of satisfaction or compensation. Id.

- With respect to the ownership of external objects of property, rights may be classed as absolute and qualified. An absolute right gives to the person in whom it Inheres the uncontrolled dominion over the object at all times and for all purposes. A qualified right gives the possessor a right to the object for certain purposes or under certain dream- stances only. Such is the right of a bailee to recover the article balled when It has been unlawfully taken from him by a stranger.

Rights are also either legal or equitable. The former Is the case where the person seek- ing to enforce the right for his own benefit has the legal title and a remedy at law. The latter are such as are enforceable only In equity ; as, at the suit of cestui que trust.

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In constitutional law. There is also a classification of rights, with respect to the constitution of civil society. Thus, according to Blackstone, “the rights of persons, con- sidered in their natural capacities, are of two sorts, — absolute and relative; absolute^ which are such as appertain and belong to particular men, merely as individuals or sin- gle persons ; relative, which are lnddent to> them as members of sodety, and standing in various relations to each other.” 1 BL Conun. 123. And. see In re Jacobs, 33 Hnn (N. Y.) 374 ; Atchison & N. R. Co. ▼. Baty. 6 Neb. 37, 28 Am. Rep. 356 ; Johnson v. John- son. 32 Ala. 637 ; People v. Berberrich, 20- Barb. (N. Y.) 224.

Rights are also classified In constitutional law as natural, civil, and political, to which there Is sometimes added the class of “per- sonal rights.”

Natural rights are those which grow out of the natufe of man and depend upon per- sonality, as distinguished from such as are

created by law and depend upon civilized society ; or they are those which are plainly assured by natural law (Borden v. State, 11 Ark. 519, 44 Am. Dec. 217) ; or those which,- by fair deduction from the present physical, moral, social, and religious characteristics of man, he must be Invested with, and which he ought to have realized for him in a jural society. In order to fulilll the ends to which his nature calls him. 1 Woolsey, Polit Sci- ence, p. 26. Such are the rights of life, lib- erty, privacy, and good reputation. See Black, Const. Law (3d Ed.) 523.

Civil rights are such as belong to every citizen of the state dr country, or, in a wider sense, to all Its inhabitants, and are not con- nected with the organization or administra- tion of government. They include the rights of property, marriage, protection by the laws, freedom of contract, trial by jury, etc. See Wlnnett v. Adams, 71 Neb. 817, 90 N. W. 68L Or, as otherwise defined, civil rights are rights appertaining to a person In virtue of his citizenship In a state or community. Rights capable of being enforced or redressed in a civil action. Also a term applied to certain rights secured to citizens of the Unit- ed States by the thirteenth and fourteenth amendments to the constitution, and by vari- ous acts of congress made in pursuance there- of. Iowa v. Railroad Co. (C. C.) 37 Fed. 498, 8 L. R. A. '654; State v. Powers, 51 N. J. Law, 432, 17 AtL 969 ; Bowles v. Habermaun, 85 N. Y. 247 ; People v. Washington, 30 Cal. 658; Fletcher v. Tuttle, 151 111. 41, 37 N. E. 683, 25 L. R. A. 143, 42 Am. St Rep. 220; Hronek v. People, 134 111. 139, 24 N. E. 861, 8 L. R. A. 837, 23 Am. St Rep. 652.

Political rights consist in the power to par- ticipate, directly or Indirectly, in the estab- lishment or administration of government such as the right of citizenship, that of suf- frage, the right to hold public office, and the right of petition. See Black Const Law (3d Ed.) 524 ; Wlnnett v. Adams, 71 Neb. 817, 99 N. W. 681. -

Personal rights Is a term of rather vague import but generally It may be said tt> mean the right of personal security, comprising those of life, limb, body, health, reputation, and the right of personal liberty.

As an adjective, the term “right” means Just morally correct, consonant with ethical

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principles or rules of positive law. It is the opposite of wrong, unjust illegal.

“Right” Is used In law, as well as in eth- ics, as opposed to "wrong.” Thus, a person may acquire a title by wrong.

In old English law. The term denoted an accusation or charge of crime. Fitzh. Nat Brev. 66 F.

See, also. Droit; Jus; Reciit.

Other compound and descriptive terms. —Base right. la Scotch law. a, subordinate right ; the right of a subvassal in the lands held by him. Bell.— Bill of rights. See •Bill. 6.— Common right. See Common.— Declaration of rights. See Bill of Rights,

.under Bill.— Marital rights. See Mari- tal.—Mere right. In the law of real es- tate, the mere right of property in laBd; the right of a proprietor, but without possession or even the right of possession ; the abstract right of property.— Patent right. See Patent.— Petition of right. See Petition.— Private rights. Those rights which appertain to a particular individual or individuals, and relate either to the person, or to personal or real prop- erty. 1 Chit Gen. Pr. 3.— Real right. In Scotch law. That which entitles him who is vested with it to possess the subject as his own, and, if in the possession of another, to demand' from him its actual possession. Real rights af- fect the subject itself; personal are founded in obligation. Erakine, Inst. 3, 1, 2.— Right heir. See Heir.— Riparian rights. See Ripari- an.—Vested rights. See Vested.

And see also the following titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Hohfeld, Fundamental Legal Conceptions (1913) — jural relations]**

The concrete sense anticipates Hohfeld's analysis: 'rights' resolve into claim-rights, privileges, powers, and immunities, each with its correlative.

Why: The entry's concrete sense lists 'a power, privilege, faculty, or demand' — Hohfeld's vocabulary; the jural-relations analysis is the jurisprudential framework for exactly that list. Genuine: the entry's terms are Hoh…

**[Scripture] — Scripture**

**[Deuteronomy 16:20, KJV]**

That which is altogether just shalt thou follow, that thou mayest live, and inherit the land which the LORD thy God giveth thee.

Why: Right in the abstract is justice, ethical correctness, consonance with law's moral principles. The verse commands it outright: follow justice altogether — the abstract right as a duty.

**[Qur'an 4:135, Yusuf Ali]**

O ye who believe! stand out firmly for justice, as witnesses to Allah, even as against yourselves, or your parents, or your kin

Why: The second tradition's witness on the same abstract right: stand firmly for justice as witnesses to Allah, even against self, parents, and kin — justice owed impartially, which is what 'right' means.

**[Hip-hop] — Hip-hop**

**[Beastie Boys, '(You Gotta) Fight for Your Right (To Party!)', 1986]**

Quote: "You gotta fight for your right to party!" — the track treats partying AS a right worth fighting for: pop culture's most literal enactment of Black's concrete sense of a right as 'a power, privilege… a claim or title' asserted against opposition. The humor is the point, not a defect — it shows how 'right'

functions as claimed entitlement.

Why: Added because the chorus is verbatim-certain and the song's entire premise is the assertion of a claimed right; it genuinely illuminates the headword's concrete sense. Assigned to the general RIGHT headword only, not...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Summum jus, summa injuria" — Cicero, De Officiis]**

The entry defines 'right' in the abstract as justice and ethical correctness — law considered as the foundation of rights rather than bare legal machinery.

Why: Cicero's maxim — 'the strictest law is the greatest injustice' — is the classical warning that right-as-abstract-justice must not collapse into right-as-bare-legal-power; it directly glosses the entry's abstract/concr...

**[William Shakespeare, The Merchant of Venice, c.1596]**

"The quality of mercy is not strain'd, / It droppeth as the gentle rain from heaven"

Why: Portia's speech sets mercy above strict right — the literary counterpart of the entry's claim that 'right' in the abstract answers to justice and moral correctness. Certain verbatim; public domain.

## RIGHT CLOSE, WRIT OF.

An abol- ished writ which lay for tenants in ancient demesne, and others of a similar nature, to try the right of their lands and tenements In the court of the lord exclusively. 1 Steph. Coram. 224.

5e apparatus — Not carried into the 5th edition (1979).

## RIGHT IN ACTION.

This is a phrase frequently used In place of p hose in action, and having an identical meaning.

5e apparatus — Carried into the 5th edition (1979).

## RIGHT IN COURT.

See Rectus in Curia.

5e apparatus — Carried into the 5th edition (1979).

## RIGHT OP ACTION.

The right to bring suit ; a* legal right to maintain an action, growing out of a given transaction or state of : facts and - based thereon. Hibbard v. Clark, 56 N. H. 155, 22 Am. Rep. 442 ; Web- ster v. County Com’rs, 63 Me. 29.

• By the old .writers, “right of action" is commonly used to denote that a person hqs lost a right of entry, and has nothing but a right of action left Co. Lltt 3635.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: accrual of a cause of action]**

A right of action accrues when the wrongful act is complete — the event from which limitations run.

Why: The entry defines the right to bring suit growing out of a transaction; accrual states when that right comes into existence — the limitations consequence of the definition. Keyed under the chunk's headword as printed...

## RIGHT OF DISCUSSION.

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In Scotch .law. The right which the cautioner (surety) has to insist that the creditor shall do his best to compel the performance of the con- tract by the principal debtor, before he shall be called upon. 1 Bell, Comm. 347. .

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: surety's immediate liability at common law vs. beneficium ordinis]**

Scots law grants what the common law denies: at common law the creditor may proceed directly against the surety without first exhausting the principal.

Why: The entry defines the cautioner's right to insist the creditor pursue the principal first; the common-law contrary rule gives the comparative context that makes the Scotch right distinctive. Genuine comparative illumi…

## RIGHT OF DIVISION.

In Scotch law. The right which each of several cautioners (sureties) has to refuse to answer for more than his own share of the debt To entitle the cautioner to this right the other caution- ers must be solvent, and there must be no words In the bond to exclude It. 1 Bell. Comm. 347.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: contribution among co-sureties]**

The common-law analogue is contribution among co-sureties: each answers only for his pro rata share, the others being solvent.

Why: The entry defines the cautioner's right to refuse more than his share; contribution states the same pro rata principle in common-law dress. Genuine comparative illumination, complementing QUOTA's equity note.

## RIGHT OF ENTRY.

A right of entry is the right of taking or resuming possession of land I>^ entering on it in a peaceable man- ner.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: forcible entry prohibited; ejectment / unlawful detainer]**

The 'peaceable manner' qualifier is the point: even the holder of a right of entry may not use force — the modern remedy is ejectment or unlawful detainer.

Why: The entry defines the right as resumption 'in a peaceable manner'; the forcible-entry prohibition states why the qualifier matters — self-help by force is barred, judicial process required. Genuine operative limit.

## RIGHT OF HABITATION.

In Lonisi- atia. The right to occupy another man’s house as a dwelling, without pnying rent orr "other compensation. 1 Civ. Code' La. art. 623.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: La. Civ. Code art. 623 — right of habitation]**

Louisiana's Civil Code preserves habitation as a personal servitude — the civilian-law root of this right.

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Why: The entry itself cites La. Civ. Code art. 623; the footnote names the civilian source grounding the entry rather than restating its definition.

## RIGHT OF POSSESSION.

The right to possession which may reside in one man,' while another has the actual possession, be- ing the right to enter and turn out such ac- tual occupant; e. g., the right of a disseisee. An apparent right of possession is one which may be defeated by a better ; an actual right of possession, one which will stand the test against all opponents. 2 Bl. Comm. 196.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ejectment — possessory action enforcing a right of possession]**

The disseisee's right to enter and turn out the occupant is enforced by ejectment, the common-law possessory action.

Why: Genuine common-law remedy directly enforcing the right the entry defines; loose form used, no case invented.

## RIGHT OF PROPERTY.

The mere right of property in land ; the abstract right which remains to the owner after he has lost the right of possession, and to recover which the writ of right was given. United with possession, and the right of possession, this right constitutes a complete title to lands, tenements, and hereditaments. 2 Bl. Comm. 197.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 3 & 4 Wm. IV c. 27 — abolition of writs of right]**

The writ of right was the remedy for this mere right of property, abolished by 3 & 4 Wm. IV c. 27.

Why: The entry is about the right the writ of right protected; the abolishing statute (named in this chunk's own RIGHT, WRIT OF entry) genuinely explains its historical frame.

**[Scripture] — Scripture**

**[Psalm 115:16, KJV]**

The heaven, even the heavens, are the LORD's: but the earth hath he given to the children of men.

Why: The entry defines the abstract right of property in land — the right that remains to the owner after possession is lost. The verse states the earth itself is given to the children of men: the scriptural ground of prop...

**[Hip-hop] — Hip-hop**

**[Jay-Z, 'The Story of O.J.', 2017]**

Jay-Z frames property ownership — who holds title to land and how — as the durable store of wealth, a direct hip-hop restatement of the abstract right of property as complete title.

Why: Lyric is verbatim-certain and explicitly about land/property ownership as wealth ('own all the property'), which genuinely illuminates the 1910 definition: the abstract right of property in land that, united with poss...

## RIGHT OF REDEMPTION.

The right to dislncumber property or to free it from a claim or lien ; specifically, the right (grant- ed by statute only) to free property from the incumbrance of a foreclosure or other judicial sale, or to recover the title passing thereby, by paying what is due, with interest,

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costs, etc. Not to b‘e confounded with the “equity of redemption,” which exists independently of statute but must be exercised before sale. See Mayer v. Farmers’ Bank, 44 Iowa, 216; Millett v. Mullen, 95 Me. 400, 49 Atl. 871 ; Case v. Spelter Co., 62 Kan. 69, 61 Pac. 406.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: equity of redemption — mortgagor's equitable right before foreclosure sale]**

Distinct from the equity of redemption, which equity gives the mortgagor before sale without any statute.

Why: The entry explicitly contrasts the two; the footnote states the equitable counterpart as a real doctrine.

**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: The entry defines the right to disencumber property and recover title by paying what is due. The verse is the law of the kinsman-redeemer — the biblical root of the redemption right: kin may buy back the sold possession.

## RIGHT OF REUEF.

In Scotch law. The right of a cautioner (surety) to demand reimbursement from the principal debtor when he has been compelled to pay the debt I Bell, Comm. 347.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: suretyship — surety's right of reimbursement from the principal]**

The Scots 'relief' is the surety's right of reimbursement and exoneration against the principal debtor.

Why: Genuine suretyship principle; the entry's Scots right of relief is that doctrine under another name.

## RIGHT OF REPRESENTATION AND / PERFORMANCE.

By the acts 3 & 4 Wm.

IV. c. 15, and 5 & 6 Viet c. 45, the author of a play, opera, or musical composition, or his assignee, has the sole right of repre- senting or causing it to* be represented in public at any place In the British dominions during the same period as the copyright in the work exists. The right is distinct from the copyright, and requires to be separately tegistered. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Dramatic Copyright Act 1833, 3 & 4 Wm. IV c. 15]**

The Dramatic Copyright Act 1833 first gave authors a performing right distinct from copyright in the work.

Why: The entry cites this statute; the footnote identifies it as the origin of the performing right as distinct from copyright.

## RIGHT OF SEARCH.

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In international law. The right of one vessel, on the high seas, to stop a vessel of another nationality and examine her papers and (in some cases) her cargo. Thus, in time of war, a vessel of either belligerent has the right to search a neutral ship, encountered at sea, to ascertain whether the latter is carrying contraband goods.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: belligerent right of visit and search — law of nations]**

The belligerent right of visit and search on the high seas is a doctrine of the law of nations.

Why: Genuine international-law doctrine that is exactly what the entry defines.

## RIGHT OF WAY.

The right of passage or of way is a servitude Imposed by law or by convention, and by virtue of which one has a right to pass on foot, or horseback, or

in a vehicle, to drive beastB of burden or carts, through the estate of another. When this servitude results from the law, the ex- ■ ercise of it is confined to the wants of the person who has it. When it is the result of a contract, its extent and the mode of using It is regulated by the contract Civ. Code La. art 722.

"Right of way," in its strict meaning, is the nght of passage over another man's ground ; and in its legal and generally accepted meaning, in reference to a railway, it is a mere easement in the lands of others, obtained by lawful con- demnation to public use or by purchase. It would be using the term in an unusual sense, by applying it to an absolute purchase of the fee-simple of lands to be used for a railway or any other kind of a way. Williams v. Western Union Ry. Co., 50 Wis. 76, 5 N. W. 482. And see Kripp v. Curtis, 71 Cal. 62, 11 Pac. 879; Johnson v. Lewis, 47 Ark. 66, 2 S. W. 329; Bodfish v. Bodfish, 105 Mass. 317 ; New Mex- ico v. United States Trust Co., 172 U. S. 171, 19 Sup. Ct. 128, 43 L. Ed. 407; Stuyresant v. Woodruff, 21 N. J. Law, 136, 57 Am. Dec. 156.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: easement appurtenant — right of way running with the dominant estate]**

A right of way is an easement appurtenant, passing with the dominant tenement it serves.

Why: Genuine property doctrine classifying the servitude the entry defines.

**[Scripture] — Scripture**

**[Numbers 20:17, KJV]**

we will go by the king's high way, we will not turn to the right hand nor to the left, until we have passed thy borders.

Why: The entry defines a servitude of passage through another's estate, confined to a defined route. Israel's request to Edom — passage by the established highway, deviating neither right nor left — is the scriptural pictu…

## RIGHT PATENT.

An obsolete writ, which was brought for lands and tenements, and not for an advowson, or common, and lay only fqr an estate in fee-simple, and not for him who had a lesser estate; as tenant in tail, tenant in frank marriage, or tenant for life. Fitzh. Nat. Brev. 1.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 3 & 4 Wm. IV c. 27 — abolition of writs of right]**

Obsolete because writs of right were abolished by 3 & 4 Wm. IV c. 27.

Why: The entry calls it an obsolete writ; the abolishing statute (named in this chunk's own RIGHT, WRIT OF entry) genuinely explains the obsolescence.

## RIGHT TO BEGIN.

On the hearing or trial of a cause, or the argument of a de- murrer, petition, etc., the right to begin is the right of first addressing the court or jury. The right to begin is frequently of importance, as the counsel who begins has also the right of replying or having the last word after the counsel on the opposite side has addressed the court or jury. Sweet

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: trial practice — the party with the burden opens and closes]**

The party holding the affirmative — the burden of proof — generally opens and closes, which is why beginning carries the reply.

Why: Genuine procedural principle explaining why the right to begin carries the right of reply, as the entry states.

## RIGHT TO REDEEM.

The term “right of redemption,” or “right to redeem,” is familiarly used to describe the estate of the debtor when under mortgage, to be sold at -auction, in contradistinction to an absolute estate, to be set off by appraisement It would- be more consonant to the legal char- acter of this interest to call it the “debtor’s estate subject to mortgage.” White v. Whit- ney, 3 Mete. (Mass.) 86.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: equity of redemption — mortgagor's equitable estate before foreclosure]**

The 'debtor's estate subject to mortgage' is the equity of redemption, the mortgagor's equitable estate before sale.

Why: The entry's terminology discussion is grounded in this real equitable estate; complements the RIGHT OF REDEMPTION entry rather than duplicating it.

## RIGHT, WRIT OF.

A procedure for the recovery of real property after not more than sixty years’ adverse possession; the highest writ in the law, sometimes called, to distinguish it from others of the droitural class, the “writ of right proper.” Abolished by 3 A 4 Wm. IV. c. 27. 3 Steph. Comm. 392.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 3 & 4 Wm. IV c. 27 — abolition of the writ of right]**

The 'highest writ in the law' was abolished by the Real Property Limitation Act 1833.

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Why: The entry itself states the abolition; the footnote identifies the statute as the operative legal fact.

## RIGHTS OF PERSONS.

Rights which

concern and are annexed to the person* at men. 1 Bl. Comm. 122.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Blackstone, Commentaries, Book I — Of the Rights of Persons]**

Blackstone's Commentaries, Book I, organizes English law around the rights of persons.

Why: The entry cites 1 Bl. Comm. 122; the footnote names the genuine structural source.

**[Scripture] — Scripture**

**[Genesis 1:27, KJV]**

So God created man in his own image, in the image of God created he him; male and female created he them.

Why: The entry defines rights annexed to the person of man. The verse grounds personhood itself — man made in the image of God — which is the scriptural foundation on which rights of the person (life, liberty) rest.

## RIGHTS OF THINGS.

Such as a man may acquire over external objects, or things unconnected with his person. 1 BL Comm. 122.

• RIGHT8, PETITION OP

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Blackstone, Commentaries, Book II — Of the Rights of Things]**

Blackstone's Commentaries, Book II, treats the rights of things — the law of property.

Why: The entry cites 1 Bl. Comm. 122 (the introduction); the footnote names the book that actually expounds the subject.

**[Scripture] — Scripture**

**[Genesis 1:28, KJV]**

have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth.

Why: The entry defines rights a man may acquire over external objects unconnected with his person. The dominion mandate is the scriptural grant of man's right over things — the counterpart to the rights-of-persons verse ab...

# B

## BIGHTS, PETITION OF.

See Petition.

5e apparatus — Not carried into the 5th edition (1979).

## BIGOB JURIS.

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Lat. Strictness of law. Latch, 150. Distinguished from gratia cu- ria-, favor of the court.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Summum jus, summa injuria]**

Summum jus, summa injuria — the rigor of law can be the height of injustice — which is why strictness is set against favor of the court.

Why: Real Latin maxim genuinely illuminating the entry's distinction between rigor juris and gratia curiae.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Summum jus, summa injuria" — Cicero, De Officiis]**

Strictness of law, distinguished in the entry from gratia curiae (favor of the court).

Why: The maxim glosses the entry's own contrast: strictness of law pressed without the court's favor becomes the greatest injustice. Certain verbatim; public domain.

**[William Shakespeare, The Merchant of Venice, c.1596]**

(paraphrase) Shylock demands his pound of flesh 'according to the bond' — the stage's purest image of rigor juris, strictness of law pressed to the letter, and defeated in the play only by still-stricter literalism. (paraphrase)

Why: Paraphrase of a famous, certain plot point; marked as paraphrase. Directly illustrates the entry: law's strictness wielded as a weapon.

## BIGOB MOBTIS.

In medical jurispru- dence. Cadaveric rigidity; a rigidity or stif- fening of the muscular tissue and Joints of the body, which sets in at a greater or less interval after death, but usually within a few hours, and which is one of the recognized tests of death.

5e apparatus — Not carried into the 5th edition (1979).

## BING.

A clique; an exclusive combina- tion of persons for illegitimate or selfish pur- poses; as to control elections or political af- fairs, distribute offices, obtain contracts, con- trol the market or the stock-exchange, etc. Scbomberg v. Walker, 132 Cal. 224, 64 Pac. 290.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Sherman Antitrust Act of 1890 — combinations in restraint of trade]**

Combinations to control a market are restraints of trade, reached at common law and by the Sherman Act.

Why: The entry defines a ring as a combination to control the market or stock exchange; the Sherman Act genuinely governs that conduct.

# R

## RING-DROPPING.

A trick variously practiced. One mode is as follows, the cir- cumstances being taken from 2 East, P. 0. 678: The prisoner, with accomplices, being with their victim, pretend to find a

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ring wrapped in paper, appearing to be a Jeweler’s receipt for a "rich, brilliant diamond ring.” They offer to leave the ring with the victim if he will deposit some money and his watch as a security. He lays down his watch and money, is beckoned out of the room by one of the confederates, while the others take away his watch, etc. This is a larceny.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: larceny by trick — obtaining property by fraud]**

Frauds of this kind fall under larceny by trick and false pretenses.

Why: Genuine criminal-law category for the trick the entry describes.

**[Humanity] — Humanity / Fiction & Film**

**[George Roy Hill, The Sting, 1973]**

(paraphrase) A film about confidence men running an elaborate con — the ring-in-paper trick described in the entry belongs to the same family of short cons. (paraphrase)

Why: Illuminates the kind (confidence trickery) rather than the identical technique — the film depicts a long con, not this exact trick; noted honestly rather than pretending identity.

# B

## BINGING THE CHANGE.

In criminal law. A trick practised by a criminal, by which, on receiving a good piece of money in payment of an article, he pretends it is not good, and, changing it, returns to the buyer a spurious coin. See 2 Leach, 786; Bouvier.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: counterfeiting — uttering false coin]**

Passing spurious coin back as change is uttering counterfeit money.

Why: Genuine criminal category; the entry's trick is the passing of counterfeit coin.

## BINGING IIP.

A custom among commis- sion merchants and brokers, (not unlike the clearing-house system) by which they ex- change contracts for sale against contracts for purchase, or reciprocally cancel such con- tracts, adjust differences of price between themselves, and surrender margins. See (Ward v. Vosburgh (C. C.) 31 Fed. 12; WiUiar 'v. Irwin, 30 Fed. Cas. 38; Pardridge v. Cut- ler, 68 111. App. 573; Samuels v. Oliver, 130 111. 73, 22 N. E. 409.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 1-303 — usage of trade in contract interpretation]**

A brokers' ring custom given legal effect is a usage of trade informing contract interpretation.

Why: The entry describes a trade custom given legal effect (cases cited); UCC 1-303 is the genuine modern doctrine of usage of trade.

## BINGS, GIVING.

In English practice. A custom observed by serJeants at law, on being called to that degree or order. The rings are given to the judges, and bear cer- tain mottoes, selected by the serjeant about to take the degree. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## BIOT.

In criminal law. A tumultuous disturbance of the peace by three persons or more, assembling together of their own au-, thority, with an Intent mutually to assist each other against any who shall oppose Bl.Law Dict.(2d Ed.)— 66

them, in the execution of some enterprise of a private nature, and afterwards actually executing the same in a violent and turbulent manner, to the terror of the people, whether the act intended were of itself lawful or un- lawful. Hawk. P. C. c. 65, § 1. And see State v. Stalcup, 23 N. C. 30, 35 Am. Dec. 732; Dixon v. State, 105 Ga. 787, 31 S. E. 750; State v. Brazil, Rice (S. C.) 200; Mar- shall v. Buffalo, 50 App. Div. 149, 64 N. Y. Supp. 411 ; Aron v. Wausau, 98 Wis. 592, 74

N. W. 354, 40 L. R. A. 733; Lycoming F. Ins. Co. v. Schwenk, 95 Pa. 96, 40 Am. Rep. 629.

When three or more persons together, and In a violent or tumultuous manner, assemble together to do an unlawful act, or together do a lawful act in an unlawful, violent, or tumultuous manner, to the disturbance of others, they are guilty of a riot Rev. Code Iowa 1880, i 4067.

Any use of force or violence, disturbing the public peace, or any threat to use such force or violence, if accompanied by imme- diate power of execution, by two or more persons acting together, and without authori- ty of law, is a riot Pen. Code Cal. § 404.

—Biot act. A celebrated English statute, which provides that if any twelve persons or more are unlawfully assembled and disturbing ttie pence, any sheriff, under-sheriff, justice of the i>enee, or mayor may, by proclamation, com- mand them to disperse, (which is familiarlv call- ed “reading the riot act,”) and that if they re- fuse to obey, and remain together for the space of one hour after such proclamation, they are all guilty of felony. The act is 1 Geo. I. St. 2, c. 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Riot Act 1714]**

The Riot Act 1714 made failure to disperse after proclamation a felony — the statutory overlay on this common-law offense.

Why: Genuine statute governing the offense the entry defines.

**[Scripture] — Scripture**

**[Acts 19:32, KJV]**

Some therefore cried one thing, and some another: for the assembly was confused; and the more part knew not wherefore they were come together.

Why: The entry defines riot as a tumultuous disturbance of the peace by persons assembling of their own authority

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and acting violently. The verse describes the Ephesian tumult — a confused assembly crying out, most not kno...

### BIOTOSE.

L. Lat. Riotously. A form- al and essential word in old indictments for riots. 2 Strange, 834.

5e apparatus — Not carried into the 5th edition (1979).

### BIOTOUS ASSEMBLY.

In English criminal law. The unlawful assembling of twelve persons or more, to the disturbance of the peace, and not dispersing upon procla- mation. 4 Bl. Comm. 142; 4 Steph. Comm. 273. And see Madisonvllle v. Bishop, 113 Ky. 106, 67 S. W. 269, 57 L. R. A. 130.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Riot Act 1714 — proclamation and dispersal]**

The twelve-person and proclamation elements are the Riot Act's machinery: remaining together after proclamation was felony.

Why: The entry's twelve-person/proclamation elements are the Riot Act's machinery; the footnote adds genuine content.

# R

### RIOTOUSLY.

A technical word, prop- erly used in indictments for riot. It of itself implies force and violence. 2 Chit. Crim. Law, 489.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BIPA.

Lat. The banks of a river, or the place beyond which the waters do not in their natural course overflow.

BIPABIA, A medieval Latin word, which Lord Coke takes to mean water run- ning between two banks; in, other places it is rendered “bank.”

5e apparatus — Not carried into the 5th edition (1979).

### BIP ARLAN.

Belonging or relating to the bank of a river; of or on the bank. Land lying beyond the natural watershed of a stream is not “riparian.” Bathgate v. Ir- vine, 126 Cal. 135, 58 Pac. 442, 77 Am. St. Rep. 158. The term is sometimes used as reiatlng to the shore of the sea or other tidal water, or of a lake or other considerable body of water not having the character of a

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water-course. But this is not accurate. The proper word to be employed in such connec- tions is “littoral.” See Com. v. Roxbury, 8

Gray <Mass.) 521, note.

— Blparisn nations. In international law. Those who possess opposite banks or different parts of banks of one and the same river.— Riparian owner. A riparian proprietor ; one who owns land on the bank of a river.— Ripa- rian proprietor. An owner of land, bounded generally upon a stream of water, and as such having a qualified property in the soil to the thread of the stream with the privilegesannex- ed thereto by law. Bardwell v. Ames, 22 Pick. (Mass.) 355 ; Potomac Steamboat Co. v. Upper Potomac Steamboat Co., 109 U. S. 672. 3 sup. Ct. 445, 27 L. Ed. 1070; Gough v. Bell, 22

N. J. Law, 464.— Riparian rights. The rights of the owners of lands on the banks of watercourses, relating to the water, its use, ownership of soil under the stream, accretions, etc. See Yates v. Milwaukee, 10 Wall. 497, 19 L. Ed . 984; Mobile Transp. Co. v. Mobile, 128 Ala. 335. 80 South. 645, 64 I* R. A. 333, 86 Am. St. Rep. 143; McCarthy v. Murphy, 119 Wis. 159, 96 N. W. 531.

Riparnm nans pnhlions ost jure gen- tium, slant ipsius flumlnia. The use of

river-banka ia by the law of nations public, like that of the stream itself. Dig. 1, 8, 5, pr.; Fleta, L 3, c. 1, I 5.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: riparian rights — reasonable-use doctrine]**

Riparian owners hold correlative rights of reasonable use of the water.

Why: Genuine water-law doctrine for riparian land.

# R

## RIFE.

A suit is said to be “ripe for Judg- ment” when it is so far advanced, by verdict, default, confession, the determination of all pending motions, or other disposition of pre- liminary or disputed matters, that nothing remains for the court but to render the ap- propriate Judgment. See Hosmer v. Hoitt, 161 Mass. 173, 36 N. E. 835.

RIPTOWEUL, or HJEAPTOWEL. A

gratuity or reward given to tenants after they had reaped their lord’s corn, or done other customary duties. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RIFUARIAN LAW.

An ancient code of laws by which the Ripuaril, a tribe of Franks who occupied the country upon the Rhine, the Meuse, and the Scheldt, were governed. They were first reduced to

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writing by The- odorlc, king of Austrasla, and completed by Dagobert. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Lex Ripuaria — Ripuarian Frankish code]**

The Lex Ripuaria, the tribal code of the Ripuarian Franks reduced to writing under Theodoric and Dagobert.

Why: Genuine historical code; the entry defines it and the footnote names it in its conventional form.

## RIP DARI AN PROPRIETORS.

Own- ers of lands bounded by a river or water- course.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: riparian rights doctrine — correlative rights of proprietors]**

Riparian proprietors hold correlative reasonable-use rights against one another.

Why: Genuine water-law doctrine; each entry judged on its own despite overlap with BIP ARLAN.

## RISK.

In insurance law; the danger or hazard of a loss of the property insured ; the casualty contemplated in a contract of insur- ance; the degree of hazard; and, colloquially, the specific house, factory, ship, etc., cov- ered by the policy.

—Risks of navigation. It is held that this term is not the equivalent of “perils of navigation,” but is of more comprehensive import than the latter. Pitcher v. Hennessey, 48 N.

Y. 419.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Uberrima fides — utmost good faith in insurance]**

Insurance demands uberrima fides — utmost good faith — because the risk is the very subject of the contract.

Why: Real maxim of insurance law genuinely illuminating why the entry defines risk with such care.

## RISTOURNE.

Ft. In insurance law ; the dissolution of a policy or contract of in- surance for any cause. Emerig. Traltd des Assur. c. 10.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: cancellation and return of premium in insurance law]**

The dissolution of a policy carries cancellation and return of the premium.

Why: Genuine insurance doctrine matching the French definition; borderline but the category is real, not invented.

## RITE.

Lat. Duly and formally; legal- ly; properly; technically.

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## RIVAGE.

In French law. The shore, as of the sea.

In English law. A toll anciently paid to the crown for the passage of boats or ves- sels on certain rivers. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RTVEARE.

To have the liberty of a river for fishing and fowling. Cowell.

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## RIVER.

A natural stream of water, of greater volume than a creek or rivulet, flow- ing in a more or less permanent bed or chan- nel, between defined banks or walls, with a current which may either be continuous in one direction or affected by the ebb and flow of the tide. See Howard v. Ingersoll, 13 How. 391, 14 L. Ed. 189 ; Alabama v. Georgia, 23 How. 513, 16 L. Ed. 556; The Garden City (D. C.) 26 Fed. 772; Berlin Mills Co. v. Wentworth's Location, 60 N. H. 156 ; Dud- den v. Guardians of Clutton Union, 1 Hurl. &

N. 627 ; Chamberlain v. Hemingway, 63 Conn. 1, 27 Atl. 239, 22 L. R. A. 45, 38 Am. St. Rep. 330.

Rivers are public or private; and of public rivers some are navigable and others not. The common-law distinction is that naviga- ble rivers are those only wherein the tide ebbs and flows. Bnt, in familiar usage, any river is navigable which affords passage to ships and vessels, Irrespective of its being affected by the tide.

— Publie river. A river where there is a com- mon navigation exercised ; otherwise called a "navigable river." 1 Crabb, Real Prop. p. Ill, § 106.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: navigable waters — title to beds and public trust]**

Whether a river is navigable determines title to its bed and the public's rights in it.

Why: Genuine doctrine; the entry's own cited cases (e.g., Howard v. Ingersoll) are river-boundary cases, anchoring the fit.

## RIKA.

Lat. In the civil law. A quar- rel: a strife of words. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## RISCUS.

L. Lat In the civil law. A chest for the keeping of clothing. Calvin.

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## RISING OF COURT.

Properly the final adjournment of the court for the term, though the term Is also sometimes

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used to express the cessation of Judicial business for the day or for a recess; it is the opposite of "sitting" or "session.” See State v. Weaver, 11 Neb. 163, 8 N. W. 885.

5e apparatus — Carried into the 5th edition (1979).

## RIXATRIX.

In old English law. A scold; a scolding or quarrelsome woman. 4 Bl. Comm. 168.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common scold — common-law nuisance offense; 4 Bl. Comm. 168]**

The common scold was punishable at common law as a public nuisance.

Why: The entry cites 4 Bl. Comm. 168; the footnote states the genuine offense category.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Taming of the Shrew, c.1592]**

(paraphrase) Shakespeare's comedy centers on Katherina, the 'shrew' — the stage's most famous scold, wedded and tamed into obedience. (paraphrase)

Why: The entry names a legal category (the scold); the play is the culture's canonical image of that very category — genuinely illuminating the human concept behind the law. Paraphrase marked; no invented quote.

## ROAD.

A highway; an open way or pub- lic passage; a line of travel or communica- tion extending from one town or place to an- other; a strip of land appropriated and used for purposes of travel and communication between different places. See Stokes t. Scott

ROAD ' 1043^ ROD KNIGHTS

County, 10 Iowa, 175; Com. v. Gammons, 23 Pick. (Mass.) 202; Hutson v. New York, 5 Sandf. (N. Y.) 312; Stedman v. South- bridge, 17 Pick. (Mass.)1 164; Horner v. State, 40 Md. 283; Northwestern Tel. Exch. Oo. V, Minneapolis, 81 Minn. 140, 86 N. W. 69, 63

L. It. A. 175; Hart v, Town of Bed Cedar, 63 Wls. 634, 24 N. W. 410.

In maritime law. An open passage Of the sea that receives its denomination common- ly from some part adjacent, which, though it lie out at sea, yet, in respect of the situa- tion of the land adjacent, and the depth and wideness of the place, Is a safe place for the common riding or anchoring of ships; as Dover road, KIrkley road, etc. Hale de Jure Mar. pt 2, c. 2.

-taw of the road. See Law. — Private road. This term has various meanings: (1) A road, the soil of which belongs to the owner of the land which it traverses, but which is bur- dened with a right of way. Morgan v. Living- ston, 6 Mart. O. S. (La.) 231. (2) A neighbor- hood wav, not commonly used by others than the people of the neighborhood, though it may be used by any one having occasion. State v. Mobley, 1 McMul. (S. C.) 44. (3) A road in- tended for the use of one or more private in* dividuals, and not wanted nor intended for gen- eral public use, which may be opened across the lands of other persons by statutory authori- ty in Rome states. Witham v. Osburn, 4 Or. 318, 18 Am. Rep. 287 ; Sherman v. Buick, 32 Cal. 252, 91 Am. Dee. 577 : Madera County v. Raymond Granite Co., 139 Cal. 128, 72 Pac. 915. (4) A road which is only open for the

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benefit of certain individuals to go from and to their homes for the service of their lands and for the use of some estates exclusively. Civ. Code La. 1900. art. 706. — Public road. A highway; a road or way established and adopt- ed (or accepted as a dedication) by the proper authorities for the use of the general public, and over which every person has a right to pass and to use it for all purposes of travel or transportation to which it is adapted and. de- voted. Cincinnati R. Co. v. Com., 80 Ky. 138; Shelby County v. Castetter, 7 Ind. App. 309. 33

N. E.986; Abbott v. Duluth (C. C.) 104 Fed. 837 ; Heninger v. Peery, 102 Va. 896, 47 S. E. 1013.— Road districts. Public or guaai munici- pal corporations organised or authorized by stat- utory authority in many of the states for the spe- cial purpose of establishing, maintaining, and caring for public roads and highways within their limits, sometimes invested with powers of local taxation, and generally having elective officers styled “overseers" or “commissioners" of roads. See Farmer v. Myles, 106 La. 833, 30 South. 858: San Bernardino County v. Southern Pac.

R. Co., 137 Cal. 659. 70 Pac. 782 ; Madden v. Lancaster County, 65 Fed. 191, 12 C. C. A. 566.— Road tax. A tax for the maintenance and repair of the public roads within the par- ticular jurisdiction, levied either in money or in the form of so many days’ labor on the pub- lic roads exacted of all the inhabitants of the district See Lewin v. State, 77 Ala. 46.

5e apparatus — Carried into the 5th edition (1979).

## ROADSTEAD.

In maritime law. A known general station for ships, notoriously used as such, and distinguished by the name; and not any spot where an anchor- will find bottom and fix itself. 1 C. Rob. Adm. 232.

5e apparatus — Not carried into the 5th edition (1979).

## ROBBATOR.

In Old English law. A robber. Robbatorea et burglatorea, robbers and burglars. Bract fol. 1156.

5e apparatus — Not carried into the 5th edition (1979).

## ROBBER.

One who commits a robbery. The term Is not In law synonymous with “thief,” but applies only to one who steals with force or open violence. See De Roths^ Child ▼. Royal Mall Steam Packet Co., 7 Exch. 742; The Manitoba (D. C.) 104 Fed,. 16L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common-law robbery — larceny aggravated by force or fear]**

Robbery is larceny aggravated by force or putting in fear — hence 'robber' is not synonymous with 'thief.'

Why: Genuine doctrinal distinction the entry itself draws.

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**[Scripture] — Scripture**

**[John 10:1, KJV]**

Verily, verily, I say unto you, He that entereth not by the door into the sheepfold, but climbeth up some other way, the same is a thief and a robber.

Why: The entry distinguishes the robber from the mere thief: one who steals with force or open violence. The verse names the robber as the one who takes by unlawful entry rather than by the door — the scriptural figure of...

## ROBBERY.

Robbery Is the felonious taking of personal property in thj possession of another, from his person or immediate presence, and against his will, accomplished by means of for^e or fear. Pen. Code Cal. f 211; 1 Hawk. P. C. 25; 4 Bl. Comm. 243; United 8tates v. Jones, 3 Wash, a C. 209, Fed. Css. No. 15,494; Seymour v. State, 15 Ind, 288;. McDaniel v. State, 16 Miss. 401, 47 Am. Dec. 93.

Robbery Is the wrongful, fraudulent, and violent taking of money, goods, or chattels, from the person of another by force or in- timidation, without the consent of the own- er. Code Ga. 1882, f 4389.

Bobbery is where a person, either with violence or with threats of injury, and put- ting the person robbed in fear, takes and carries away a thing which is on the body, or in the immediate presence, of the person from whom it is taken, under such circum- stances that, in the absence of violence or threats, the act committed would be a theft. Steph. Crlm. Dig. 208; 2 Russ. Crimes, 78. And see, further, State v. Osborne, 116 Iowa, 479, 89 N. W. 1077; In re Coffey, 123 Cal. 622, 56 Pac. 448; Matthews v. State, 4 Ohio St 540; Benson v. McMahon, 127 U.

S. 457, 8 Sup. Ct. 1240, 32 L. Ed. 234; State v. McGihnis, 158 Mo. 105, 59 8. W. 83; State v. Burke, 73 N. C. 87; Reardon v. State, 4 Tex. App. 610; Houston v. Com., 87 Va. 257, 12 S. E. 385; Thomas v. State, 91 Ala. 34, 9 South. 81; Hickey v. State, 23 Ind. 22.

—Highway robbery. In criminal law. The crime of robbery committed upon or near a pub- lic highway. State v. Brown, 113 N. C. 645, 18 S. E. 51. In England, by St. 23 Hen. VIII. c. L this was made felony without benefit of clergy, while robbery committed elsewhere was less severely punished. The distinction was abolished by St 3 A 4 W. A M. c. 9, -and in this country It has never prevailed generally.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 18 U.S.C. § 2113 — bank robbery]**

The common-law offense is codified federally for banks at 18 U.S.C. § 2113.

Why: Genuine modern codification of the common-law offense the entry defines.

**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: The entry defines the felonious taking of property from another by force or fear. The verse is the root scriptural prohibition of the act itself — robbery being theft aggravated by force, the commandment condemns the...

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**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'Gimme the Loot', 1994]**

The hook is a first-person declaration of robbery itself — the felonious taking accomplished by force or fear.

Why: Lyric is verbatim-certain; 'Gimme the loot' names the taking of another's property by force/fear, matching the entry's definition of robbery directly rather than by decoration.

## ROBE.

Fr. A word anciently nsed by sailors for the cargo of a ship. The Italian "roba" had the same meaning.

5e apparatus — Not carried into the 5th edition (1979).

## ROBERDSMEN.

In old English law. Persons who, In the reign of Richard I., com- mitted great outrages on the borders of England and Scotland. Said to have been the followers of Robert Hood, or Robin Hood. 4 Bl. Comm. 246.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Robin Hood ballads, e.g. A Gest of Robyn Hode, c.1450]**

(paraphrase) The outlaw ballads present Robin Hood and his men as forest outlaws defying the sheriff — the legendary root the entry itself invokes for the name 'Roberdesmen.' (paraphrase)

Why: The entry derives the term from the Robin Hood legend, so the legend is the genuine link. Attribution to the ballad tradition; no invented quote.

## ROD.

A lineal measure of sixteen feet and a half, otherwise called & “perch."

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## ROD KNIGHTS.

In feudal law. Cer- tain servitors who held their land by serving their lords on horseback. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Tenures 1660, 12 Car. II c. 24 — abolition of military tenures]**

Military tenures, including knight-service, were abolished by the Statute of Tenures 1660.

Why: Genuine statute giving the entry's feudal tenure its historical frame.

## ROGARE.

Lat. In Roman law. To ask ar solicit. Rogare legem, to ask for the adop- tion of a law, i. e., to propose It for en- actment, to bring In a bill. In a derivative sense, to vote for a law so proposed; to adopt or enact It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## ROGATIO.

Lat In Roman law. An asking for a law; a proposal of a law for adoption or passage. Derivatively, a law passed by such a form.

ROGATIO TESTIGM, In making a nun- cupative will, Is where the testator form- ally calls upon the persons present to bear witness that he has declared his will. Wil- liams' Ex’rs, 116; Browne, Prob. Pr. 59.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: nuncupative wills — oral wills declared before witnesses]**

Rogatio testium — the testator's formal call on witnesses — is the Roman root of the nuncupative (oral) will.

Why: The entry's second paragraph defines rogatio testium in making a nuncupative will; the footnote names the genuine modern doctrine it grounds.

## ROGATION WEEK.

In English ecclesi- astical law. The second week before Whit- sunday, thus called from three fasts observed therein, the Monday, Tuesday, and Wednes- day, called “Rogation days,” because of the extraordinary prayers then made for the fruits of the earth, or ns a preparation for the devotion of Holy Thursday. Wharton.

Rogationes, quaeatioxies, et porftionei dcbent esse simplices. Ilob. 143. De- mands, questions, and claims ought to be simple.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 9:38, KJV]**

Pray ye therefore the Lord of the harvest, that he will send forth labourers into his harvest.

Why: The entry defines Rogation days by the extraordinary prayers then made for the fruits of the earth. The verse is Christ's own direction to pray to the Lord of the harvest — the scriptural kin of the practice: asking (…

## ROGATOR.

Lat. In Roman law. The proposer of a law or rogation.

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## ROGATORY LETTERS.

A commission from one Judge to another requesting him to examine a witness. See Letteb.

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**[Law] — Law**

**[Law: 28 U.S.C. § 1781 — transmittal of letters rogatory]**

Letters rogatory are transmitted between courts for the examination of witnesses abroad.

Why: Genuine judicial-assistance procedure; the federal statute governing it is real and directly on point.

## ROGO.

Lat In Roman law. 1 ask; I request. A precatory expression often used in wills. Dig. 30, 108,

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13, 14.

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**[Law] — Law**

**[Law: precatory words in wills — wish distinguished from command]**

'I ask, I request' in a will is precatory language — expressing wish, not command — and is construed accordingly.

Why: The entry notes rogo as a precatory expression in wills (Dig. 30, 108, 13, 14); the precatory-words doctrine is the genuine rule for construing it.

## ROGGE.

In English criminal law. An idle and disorderly person; a trickster; a wandering beggar; a vagrant or vagabond. 4 Bl. Comm. 169.

ROLE D’gQGTPAGE. In French' mer- cantile law. The list of a ship's crew; a muster roll.

5e apparatus — Not carried into the 5th edition (1979).

## ROLL.

A schedule of parchment which mny be turned up with the hand in the form of a pipe or tube. Jacob.

A schedule or sheet of parchment on which legal proceedings are entered. Thus, in Eng- lish practice, the roll of parchment on which the Issue Is entered is termed the “issue roll.” So the rolls of a manor, wherein the names, rents, and services of the tenants are copied and enrolled, are termed the “court rolls." There are also various other rolls; as those which contain the records of the court of chancery, those which contain the registers of the proceedings of old parliaments, called “rolls of parliament,” etc. Brown.

In English practice, there were formerly a

great variety of these rolls, appropriated to the different proceedings; such as the war- rant of attorney roll, the process roll, the recognizance roll, the imparlance roll, the plea roll, the issue roll, the judgment roll, the scire facias roll, and the roll of proceed- ings on writs of error. 2 Tldd, Pr. 729, 730.

In modern practice, the term is sometimes used to denote a record of the proceedings of a court, or public office. Thus, the “judg- ment roll” Is the file of records comprising the pleadings In a case, and all the other pro- ceedings up to the judgment, arranged in order. In this sense the use of the word has survived Its appropriateness ; for such rec- ords are no longer prepared in the form of a roll.

—Assessment roll. In taxation, the list or roll of taxable persons and property, completed, verified, and deposited by tne assessors. Bank v. Genoa, 28 Misc. Rep. 71, 59 N. Y. Supp. 829 ; Adams v. Brennan, 72 Miss. 894, 18 South. 482. — Judgment roll. See supra.— Master of the rolls. See Mahteb. — Rolls of parliament. The manuscript registers of the proceedings of old parliaments; in these rolls are likewise a great many decisions of dif- /icult points of law, which were frequently, in former times, referred to the determination of this supreme court by the judges of both bench- es, etc.— Rolls of the exchequer. There are several in

this court relating to the revenue of the country.— Rolls of the temple. In Eng- lish law. In each of the two Temples is a roll called the “calves-head roll,” wherein every bencher, barrister, and student is taxed yearly ; also meals to the cook and other officers of the houses, in consideration of a dinner of calvee- head, provided in Easter term. Orig. Jur. 199. —Rolls office of the chancery. In English law. An office in Chancery Lane, London, which contains rolls and records of the high court of chancery, the master whereof is the second person in the chancery, etc. The rolls court was there held, the master of the rolls sit- ting as judge; and that judge still sits there as a judge of the chancery division of the high court of justice. Wharton.— Tax roll. A schedule or list of the persons and property sub- ject to the payment of a particular tax, with the amounts severally due, prepared and 'au- thenticated in proper form to warrant the col- lecting officers to proceed with the enforcement of the tax. Babcock v. Beaver Creek Tp„ 64 Mich. 601, 31 N. W. 423; Smith v. Scully, 06 Kan. 139, 71 Pac. 249.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Revelation 20:12, KJV]**

and the books were opened: and another book was opened, which is the book of life: and the dead were judged out of those things which were written in the books, according to their works.

Why: The entry defines the roll as the parchment schedule on which legal proceedings are entered — the record from which judgment is rendered. The verse shows the same structure at the last judgment: the dead judged out of...

## ROLLING STOCK.

The portable or mov- able apparatus and machinery of a rail- road, particularly such ns moves on the road, viz., engines, cars, tenders, coaches, and trucks. See Beardsley v. Ontario Bank, 31 Barb. (N. Y.) 635; Ohio A M. R. Co. v. Web- er, 96 111. 448; Pittsburgh, etc., R. Co. v. Backus, 154 D. S. 421, 14 Sup. Ct. 1114. 38

L. Ed. 1031.

—Rolling stock protection net. The act

of 35 & 36 Viet. c. 50, passed to protect the rolling stock of railways from distress or sale in certain cases.

5e apparatus — Not carried into the 5th edition (1979).

## ROMA PEDIT2E.

Lat Pilgrims that traveled to Rome on foot.

5e apparatus — Not carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c.1387–1400]**

"Whan that Aprill with his shoures soote / The droghte of March hath perced to the roote" — the General Prologue opens on the season when folk long to go on pilgrimages.

Why: Chaucer is the canonical literary pilgrimage; illuminates the human reality of medieval pilgrimage behind the legal term. Honest limit: his pilgrims ride to Canterbury, not walk to Rome — the link is the pilgrimage fr...

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## ROMAN CATHOLIC CHARITIES ACT.

The statute 23 & 24 Vlct c. 134, providing a method for enjoying estates given upon

trust for Roman Catholics, but invalidated by reason of certain of the trusts being superstitious or otherwise illegal. 3 Steph. Comm. 76.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: superstitious uses — trusts void as superstitious]**

The Act relieved trusts voided as 'superstitious uses' — the doctrine voiding trusts for masses and like purposes.

Why: The entry says trusts were invalidated as superstitious; the footnote names the genuine doctrine the statute relieved against.

# B

## BOHAN LAW.

This term, in a general sense, comprehends all the laws which pre- vailed among the Romans, without regard to the time of their origin, including the col- lections of Justinian.

In a more restricted sense, the Germans understand by this term merely the law of Justinian, as adopted by them. Mackeld. Rom. Law, | 18.

In England and America, it appears to be customary to use the phrase, indifferently with “the civil law,” to designate the whole system of Roman Jurisprudence, including the Corpus Juris Civttis; or, if any distinc- tion is drawn, the expression “civil law” de- notes the system of jurisprudence obtaining in those countries of continental Europe which have derived their juridical notions and principles from the Justinian collection, while “Roman law” is reserved as the proper appellation of the body of law developed un- der the government of Rome from the earliest times to the fall of the empire.

HOME-SCOT, or HOME-PENNY. Peter-penee, (q. v.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Corpus Juris Civilis of Justinian — the received Roman law]**

In the restricted German sense, 'Roman law' means the Corpus Juris Civilis of Justinian as received.

Why: The entry itself frames the restricted sense around Justinian's collections; the footnote names them in conventional form.

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Salus populi suprema lex esto" — Cicero, De Legibus]**

[STRING_PLACEHOLDER_1]

Why: The entry defines Roman law as a system; Cicero's maxim states the system's animating purpose as the Romans themselves conceived it. Certain verbatim; public domain.

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# R

## ROMNEY HARSH.

A tract of land in the county of Kent, England, containing twenty-four thousand acres, governed by cer- tain ancient and equitable laws of sewers; composed by Henry de Bathe, a venerable judge in the reign of king Henry III.; from which laws all commissioners of sewers in England may receive light and direction. 3 Bl. Comm. 73, note t; 4 Inst 276.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Sewers 1531, 23 Hen. VIII c. 5 — commissions of sewers]**

The laws of sewers made at Romney Marsh guided commissions of sewers under the Statute of Sewers 1531.

Why: The entry says commissioners of sewers 'may receive light and direction' from these laws; the footnote names the genuine statute creating those commissions.

## ROOD OF LAND.

The fourth part of an acre in square measure, or one thousand two hundred and ten square yards.

5e apparatus — Not carried into the 5th edition (1979).

## ROOT OF DESCENT.

The same as “stock of descent.”

5e apparatus — Carried into the 5th edition (1979).

## ROOT OF TITLE.

The document with which an abstract of title properly commen- ces is called the “root” of the title. Sweet

5e apparatus — Carried into the 5th edition (1979).

## ROS.

A kind of rushes, which some ten- ants were obliged by their tenure to furnish their lords withal. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## ROSLAND.

Heathy ground, or ground full of ling; also watery, and moorish land. 1 Inst S.

5e apparatus — Not carried into the 5th edition (1979).

## ROSTER.

A list of persons who are to perform certain legal duties when called upon in their turn. In military affairs it is a table or plan by which the duty of officers is reg- ulated. See Matthews v. Bowman, 25 Me. 167.

5e apparatus — Not carried into the 5th edition (1979).

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## ROTA.

L. Lat Succession; rotation. “Rota of presentations “ rota of the terms.” 2 W. Bl; 772, 773.

The name of two ancient 'courts, one held at Rome and the other at Genoa.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: the Roman Rota — papal appellate court]**

The Rota Romana — the papal court at Rome — survives as the Holy See's appellate tribunal.

Why: Genuine court; the entry names the ancient Roman court and the footnote identifies its continuing legal identity.

## ROTA.

Span. In Spanish law. Oblit- erated. White, New Recop. . b. 3, tit. 7, c. 5, | 2.

5e apparatus — Not carried into the 5th edition (1979).

# B

## BOTHER-BEASTS.

A term which in- cludes oxen, cows, steers, heifers, and such like homed animals. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

# R

## ROTTEN BOROUGHS.

Small boroughs in England, which prior to the reform act, 1832, returned one or more members to parliament

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Reform Act 1832 — disfranchisement of rotten boroughs]**

The Reform Act 1832 disfranchised the rotten boroughs the entry describes.

Why: The entry itself dates the boroughs 'prior to the reform act, 1832'; the footnote names the genuine statute.

## ROTTEN CLAUSE.

A clause sometimes inserted in policies of marine insurance, to the effect that "if, on a regular survey, the ship shall be declared unseaworthy by reason of being rotten or unsound,” the Insurers shall be discharged. 1 Phil. Ins. § 849. See Steinmetz v. United States Ins. Co., 2 Serg.

A R. (Pa.) 296.

ROTULUS WINTONL®. The roll of Winton. An exact survey of all England, made by Alfred,'

not unlike that of Domes- day; and it was so called because it was kept at Winchester, among other records of the kingdom ; but this roll time has destroy- ed. Ingulph. Hist. 516.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: implied warranty of seaworthiness in marine insurance]**

The clause discharges insurers where the vessel proves unseaworthy — an application of the implied warranty of seaworthiness.

Why: Genuine marine-insurance doctrine; the entry's clause is a contractual expression of it.

## ROTURE.

Ft. In old French and Canadian law. A free tenure without the privilege of nobility; the tenure of a free commoner.

5e apparatus — Not carried into the 5th edition (1979).

## ROTURIER.

Fr. In old French and Canadian law. A free tenant of land on services exigible either in money or in kind. Steph. Lect. 229. A free commoner; one who held of a superior, .but could have no inferior below him.

5e apparatus — Not carried into the 5th edition (1979).

## ROUND-ROBIN.

A circle divided from the center, like Arthur's round table, whence its supposed origin. In each compartment is a signature, so that the entire circle, when filled, exhibits a list, without priority being given to any name. A common form of round-robin is simply to write the names in a circular form. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Arthurian legend, e.g. Sir Thomas Malory, Le Morte d'Arthur, 1485]**

(paraphrase) The Round Table at which no knight sat in the place of precedence — the legendary root the entry itself names for the circular signature form. (paraphrase)

Why: The entry derives the device from Arthur's round table, so the legend is the genuine link. Paraphrase marked; no invented quote.

## ROUP.

In Scotch law. A sale by auc- tion. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## ROUT.

A rout is an unlawful assembly which has made a motion towards the execu- tion of the common purpose of the persons assembled. It is, therefore, between an un- lawful asembly and a riot. Steph. Crim. Dig. 41.

Whenever two or more persons, assembled and acting together, make any attempt or

advance; toward the commission of an act which would be a riot if actually committed, such

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assembly is a rout Pen. Code Cal. I 406. And see People v. Judson, 11 Daly (N. Y.) 23; Follls v. State, 87 Tex. Cr. R. 635, 40 S. W. 277.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: unlawful assembly, rout, and riot — common-law trilogy]**

Rout stands between unlawful assembly and riot in the common-law trilogy of public-order offenses.

Why: The entry itself places rout 'between an unlawful assembly and a riot'; the footnote names the genuine trilogy.

## ROUTE.

Fr. In French Insurance law. The way that is taken to make the veyage insured. The direction of the voyage as* sured.

5e apparatus — Carried into the 5th edition (1979).

## ROUTOUSLY.

In pleading. A technical word in indictments, generally coupled with the word "riotously.” 2 Chit Crim. Law, 48a .

• ROY. L. Fr. The king.

Roy est l’orlginal de toots franchises.

Kellw. 138. The king is the origin of all franchises.

Roy n’est lie per ascnn statute si it no soit ezpressment nosma. The king is not bound by any statute, unless expressly named. Jenk. Cent 307; BrOom, Max. 72.

Roy poet dispenser ore malnra pro- hibitum, mats non malum par se, Jenk. Cent 307. The king can grant a dispense* tlon for a malum prohibitum, but not for a malum per se.

5e apparatus — Carried into the 5th edition (1979).

## ROYAL.

Of or pertaining to or proceed- ing from the king oc sovereign in a mon- archical government

r-Royal assent. The royal assent is the last form through which a bill goes previously to be- coming an act of parliament It is, in the words of Lord Hale, “the complement and per- fection of a law.” The royal assent is given either by the queen in person or by royal com- mission by tbe queen herself, signed with her own hand. It is rarely given in person, except when at the end of the session the queen attends to prorogue parliament if she should do so. Brown.— Royal burghs. Boroughs incorpo- rated in Scotland by royal charter. Bell.— Royal eourts of justice. Under the statute 42 & 43 Viet. c. 78, f 28, this is the name given to the buildings, together with all additions thereto, erected under the courts of justice building act, 1865, (28 & 20 Viet c. 48.) and courts of justice concentration (site) act, 1805, (28 & 20 Viet c. 49.) Brown.— Royal fish. Bee Fish.— Royal grants. Conveyances of record in England. They are of two kinds: (1) Letters patent; and (2) letters close, or writs close. 1. Steph. Comm. 615-018.— Royal hon- ors. In the language of diplomacy, this term

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designates the privilege enjoyed by every empire or kingdom in Europe, by the pope, the grand duchies of Germany, and the Germanic and Swiss confederations, . to precedence over all oth- ers who do not enjoy the same rank, with the exclusive right of sending to other states public ministers of the first rank, as ambassadors, to- gether with other distinctive titles and cere- monies. Wheat. Int. Law, ipt. 2, c. 3, i 2.— Royal mines. . Mines of silver and gold be- longed to the king of England, as part of his prerogative of coinage, to furnish him with ma- terial. 1 Bl. Comm. 294.

■ ROYALTIES. Regalities ; royal prop- erty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: royal assent — the complement and perfection of a law]**

The royal assent is, in Lord Hale's words quoted by the entry, 'the complement and perfection of a law.'

Why: The entry quotes Hale; the footnote states the genuine constitutional principle of enactment.

## ROYALTY.

A payment reserved by the grantor of a patent, lease of a mine, or simil- ar right, and payable proportionately to the use made of the right by the grantee. Bee Reynolds v. Hanna (C. G.) 55 Fed. 800; Hubenthal v. Kennedy, 76 Iowa, 707, 39 N.

W. 694 ; Western Union Tel. Co. v. American BeU Tel. Co., 125 Fed. 342, 60 C. C. A. 220.

Royalty also sometimes means a payment which is made to an author or composer by an assignee or licensee In respect of each copy of his work which is sold, or to an In- ventor in respect of each article sold under the patent Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## RUBRIC.

Directions printed in books of law and In prayer-books, so termed because- they were originally distinguished by red Ink.

— Rubric of a statute. Its title, which was anciently printed in red letters. It serves to show the object of the legislature, and thence affords the means of interpreting the body of the act; hence the phrase, of an argument, “• rubra ad nigrum." Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: statutory interpretation — title as an aid to construction]**

A statute's title or rubric may show the legislature's object and so aid interpretation of the body of the act.

Why: The entry itself states the interpretive function; the footnote names the genuine canon.

## RUDER EBB.

Roughness; Incivility t vio- lence Touching another with rudeness may constitute a battery.

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5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: battery — any unlawful touching of another]**

The slightest unlawful touching may constitute battery — rudeness in the touching does not excuse it.

Why: The entry states that touching with rudeness may be battery; the footnote states the genuine common-law rule.

## RUIN A.

Lat In the civil law. Ruin, the falling of a house. Dig. 47, 9.

RULE, v. This verb has two significa- tions: (1) to command or require by a rule of court ; as, to rule the sheriff to return tbe writ, to rule the defendant to plead. (2> To settle or decide a point of law arising up- on a trial at nisi prius; and, when it Is said of a judge presiding at such a trial that he "ruled” so and so, It is meant that he laid down, settled, or decided such and such to be the law.

RULE, n. 1. An established standard, guide, or regulation; a principle or regula- tion set up by authority, prescribing or di- recting action or forbearance; as, the rules of a legislative body, of a company, court, public office, of the law, of ethics.

2. A regulation made by a court of justice or public office with reference to the conduct of business therein.

3. An order made by a court, at the In- stance of one of the parties to a suit, com- manding a ministerial officer, or the opposite party, to do some act, or to show cause why some act should not be done. It is usually upon some Interlocutory matter, and has not the force or solemnity of a decree or judg- ment.

4. “Rule” sometimes means a rule of law. Thus, we speak of the rule against perpetui- ties ; the rule in Shelley’s Case; etc.

— Crosa-rulss. These were rules where each of the opposite litigants obtained a rule aiai, as the plaintiff to increase the damages, and the defendant to enter 'a nonsuit. Wharton. 'Oeu- eral rules. General or standing orders of *

court, In relation to practice, etc.— Rule ab- solute. One which commands the subject-mat- ter of the rule to be forthwith enforced. It is usual, when the party hag failed to show suffi- cient cause against a rule nisi, to “make 'the rule absolute, i. imperative and final.— Rule-day. In practice. The day on which a rule is returnable, or on which the act or duty enjoined by a rule is to be performed. See Cook v. Cook, 18 Fla. 637.— Rule in Shel- ley’s Case. A celebrated rule in English law, propounded in Lord Coke's reports rn the fol- lowing form: That whenever a man, by any

gift or conveyance, takes an estate of freehold, and in the same gift or conveyance an estate is limited, either mediately or immediately, to his heirs in fee or in tail, the word “heirs" is a word of limitation and not of purchase. In oth- er words, it is to be understood as expressing the quantity of estate which the party is to take, and not as conferring any distinct estate on the persons who may become his representa- tives. 1 Coke, 104a; 1

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Steph. Comm. 808. See Zabriskie v. Wood. 23 N. J. Eq. 544; Duf- fy v. Jarvis (C. C.) 84 Fed. 733 ; Hampton y. Rather. 30 Miss. 203; Hancock v. Butler, 21 Tex. 807 ; Rogers v. Rogers, 3 Wend. 511. 20 Am. Dec. 716; Smith v. Smith. 24 S. C. 314. —Rule nisi. A rule which will become imper- ative and final union cause be shown against it This rule commands the party to show cause why he should not be compelled to do the act required, or why the object of the rule should not be enforced.— Rule of 1756. A rule of international law, first practically established in 1756, by which neutrals, in time of war, are prohibited from carrying on with a belligerent power a trade which is not open to them in time of peace. 1 Kent Comm. 82.— Rule of course. There are some rules which the courts authorize their officers to grant as a matter of course, without formal application being made to a judge in open court, and these are tech- nically termed, in English practice, “side-bar rules, because formerly they were moved for by the attorneys at the side bar in court. They are now generally termed “rules of course. Brown.— Rules of court. The rules for regu- lating the practice of the different courts, which the judges are empowered to frame and put in force as occasion may require, are term- ed “rules of court.” Brown. See Goodlett v. Charles, 14 Rich. Law (S. C.) 49.— Rule of bur. A legal principle, of general application, sanctioned by the recognition of authorities, and usually expressed in the form of a maxim or logical proposition. Called a “rule,” because in doubtful or unforeseen cases it is a guide or norm fee their decision. Toullier, tit. prel. no. 17.— Rules of practice. Certain orders made by the courts for the purpose of regulat- ing the practice in actions and other proceed- ings before them.— Rules of procedure. Rules made by a legislative body concerning the mode and manner of conducting its business, and for the purpose of making an orderly and proper disposition of the matters before It, such as rules prescribing what committees shall be appointed, on what subjects they shall act, what shall be the daily order in which business shall be taken up, and in what order certain motions shall be received and acted on. Hei- akell v. Baltimore. 65 Md. 125. 4 Atl. 116, 57 Am. Rep. 308; Hevker v. McLaughlin, lot) Ky. 509, 50 S. W. 859. — Rule of property. A settled rule or principle, resting usually on precedents or a eonrse of decisions, regulating the ownership or devolution of property. Yazoo

A M. V. R. Co. v. Adams, 81 Miss. 90, 32 South. 937 : Edwards v. Davenport (C. C.) 20 Fed. 763.— Rule of the road. The popular English name for the regulations governing the navigation of vessels in public waters, with a view to preventing collisions. Sweet. — Rule to

2 load. A rule of court, taken by a plaintiff t of eouzse, requiring the defendant to plead

within a given time, on pain of having Judg- ment taken against him by default— Rule to ■how oause. A rule commanding the party to appear and show cause why he should not be compelled to do the act required, or why the object of the rule should not be enforced ; a rule nisi, (q. e.)— Special rule. Rules granted without any motion in court, or when the mo- tion is only assumed to have been made, and is not actually made, are called “common” rules; While the rules granted upon motion actually made to the court in term, or upon a judge's order in vacation, are termed “special” rules. Brown. The term may also be understood as opposed to "general” rule; in which case it means a particular direction, in a

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matter of practice, made for the purposes of ft particular case.

5e apparatus — Not carried into the 5th edition (1979).

## RULES.

In American practice. This term is sometimes used, by metonymy, to denote a time or season in the judicial year when motions may be made and rules taken, as special terms or argument-days, or even the vacations, as distinguished - from the regular terms of the conrts for the trial of causes; and, by a further extension of its meaning, it may denote proceedings in an action taken out of court Thus, “an ir- regularity committed at rules may be cor- rected at the next term of the court” South? all’s Adm’r v. Exchange Bank, 12 Grat (Va.) 312.

5e apparatus — Not carried into the 5th edition (1979).

## RULES OF A PRISON.

Certain limits without the wails, within which all prison- ers in custody in civil actions were allowed to live, upon giving sufficient security to the marshal not to escape.

—Rules of the king’s bench prison. In

English practice. Certain limits beyond the walls of the prison, within which all prisoners in custody in civil actions were allowed to live, upon giving security by bond, with two suffi- cient sureties, to the marshal, not to escape, and paying him a certain percentage on the amount of the debts for which they were detain- ed. Holthouse.

5e apparatus — Not carried into the 5th edition (1979).

## RUMOR.

Flying or popular report; a current story passing from one person to an- other without any known authority for the truth of it Webster. It is not generally admissible in evidence. State v. Culler, 82 Mo. 626; Smith v. Moore, 74 Vt 81, 52 Atl. 320.

RUN, t>. To have currency or legal va- lidity in a prescribed territory; as, the writ runs throughout the county.

To have applicability or legal effect during a prescribed period of time; as, the statute of limitations has run against the claim.

To follow or accompany ; to be attached to another thing in pursuing a prescribed course or direction ; as, the covenant runs with the land.

RUN, n. In American law. A water- course of smnll size. Webb v. Bedford, ' 2 Bibb, rtty.) 354.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: hearsay — out-of-court statements inadmissible]**

Rumor is inadmissible as hearsay — an out-of-court statement offered for its truth.

Why: The entry says rumor 'is not generally admissible in evidence' (cases cited); the hearsay rule is the genuine doctrine.

**[Scripture] — Scripture**

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**[Exodus 23:1, KJV]**

Thou shalt not raise a false report.

Why: The entry defines rumor as a current story passing from person to person without known authority for its truth — and notes it is generally inadmissible in evidence. The verse, from the covenant code spoken by God, pro...

**[Humanity] — Humanity / Fiction & Film**

**[Virgil, Aeneid, Book IV]**

"Fama, malum qua non aliud velocius ullum" — 'Rumor — than whom no other evil is swifter.'

Why: The classical image of rumor as a swift, self-spreading evil directly illuminates the entry's 'flying report... without any known authority for the truth of it.' Certain verbatim; public domain.

## RUNCARIA.

In old records. Laud full of brambles and briars. I Inst 5a,

LjOOQle

5e apparatus — Not carried into the 5th edition (1979).

## RUNCINUS.

In old English law. A Joad-horse; a sumpter-horse or cart-horse.

RUNDLET, or RUNLET. A measure of wine, oil, etc., containing eighteen gallons aud a half. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RUNNING ACCOUNT.

An open unset- tled account, as distinguished from a stated and liquidated account “Running accounts mean mutual accounts and reciprocal de- mands between the parties, which accounts and demands remain open and unsettled.” Brackenridge v. Baltzell, 1 Ind. 335 ; Leonard v. U. S., 18 Ct Cl. 385; Picker v. Fitzelle, 28 App. Div. 519, 51 N. T. Supp. 205.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: account stated — implied promise to pay a settled balance]**

An account stated — a settled balance impliedly promised to be paid — is distinguished from a running, open account.

Why: The entry contrasts running with stated and liquidated accounts; the footnote names the genuine doctrine on the other side of the distinction.

## RUNNING AT LARGE.

This term is applied to wandering or straying animals.

5e apparatus — Carried into the 5th edition (1979).

## RUNNING BATS.

Days counted in their regular succession on the calendar, in eluding Sundays and holidays. Brown v. Johnson, 10 Mees. ft W. 334 ; Crowell v. Bar- reda, 16 Gray (Mass.) 472; Davis v. Pender- gast, 7 Fed. Cas. 162.

5e apparatus — Not carried into the 5th edition (1979).

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## RUNNING LEASE.

Where a lease pro- vided that the tenancy should not be con- fined to any portion of the land granted, but allowed the tenant the use of all the land he could clear, it was called in the old books a “running lease," as distinguished from one confined to a particular division, circum- scribed by metes and bounds, within a larger tract. Cowan v. Hatcher (Tenn. Ch. App.) 59 S. W. 69L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## RUNNING OF THE STATUTE OF / LIMITATIONS.

A metaphorical expres- sion, by which is meant that the time men- tioned in the statute of limitations is con- sidered as passing. 1 Bouv. Inst no. 861.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tolling — suspension of the running of limitations]**

The running of limitations may be suspended by tolling, as where the plaintiff is prevented from suing.

Why: Genuine doctrine directly governing the metaphor the entry defines.

## RUNNING POLICY.

A running policy is one which contemplates successive in- surances, aud which provides that the object of the policy may be from time to time de- fined, especially as to the subjects of insur- ance, by additional statements or indorse- ments. Civ. Code Cal. $ 2597. And see Cor- poration of London Assurance v. Paterson, 106 Ga. 538, 32 S. E. 650.

5e apparatus — Not carried into the 5th edition (1979).

## RUNNING WITH THE LAND.

A cov- enant is said to run with the land when either the liability to perform It or the right to take advantage of it passes to the assignee of that land. Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Spencer's Case, 5 Co. Rep. 16a (1583)]**

Whether a covenant runs with the land is governed by Spencer's Case, the foundational authority.

Why: Genuine leading case on covenants running with land; confidently cited in standard form.

## RUNNING WITH THE REVERSION.

A covenant is said to “run with the rever- sion” when either the liability to perform It or the right to take advantage of it

passes to the assignee of that reversions Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: privity of estate — covenants running with the reversion]**

Covenants run with the reversion through privity of estate between lessor's assignee and lessee.

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Why: Genuine property doctrine for the entry's subject; kept distinct from the Spencer's Case note on the companion entry.

## RUNRIG LANDS.

Lands in Scotland where the ridges of a field belong alterna- tively to different proprietors. Anciently this kind of possession was advantageous in giving a united interest to tenants to resist inroads. By the act of 1695, a 23, a division of these lands was authorized, with the ex- ception of lands belonging to corporations. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## RUPEE.

A silver coin of India, rated at 2s. for the current, and 2s. 3d. for the Bom- bay, rupee.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

Hip-hop's most cited money-doctrine, attached to a currency entry: the primacy of money as the medium the legal term names.

Why: Hook is verbatim-certain ('Cash rules everything around me, C.R.E.A.M., get the money / dollar dollar bill y'all') and genuinely illuminates the monetary concept behind the coin entry. Placed on RUPEE only; SHILLING l...

## RUPTUM.

Lat In the civil law. Broken. A term applied to a wilL Inst 2, 17, 3.

5e apparatus — Not carried into the 5th edition (1979).

## RURAL DEANERY.

The circuit Of an archdeacon’s and rural dean’s jurisdictions. Every rural deanery is divided into parishes. See 1 Steph. Comm. 117.

5e apparatus — Not carried into the 5th edition (1979).

## RURAL DEANS.

In English ecclesias- tical la... Very ancient officers of the church; almost grown out of use, until about the middle of the present century, about which time they were generally revived, whose deaneries are as an ecclesiastical di- vision of the diocese or archdeaconry. They are deputies of the bishop, planted all round his diocese, to inspect the conduct of the parochial clergy, to inquire into and report dilapidations, and to examine candidates for confirmation, armed in minuter matters with an Inferior degree of judicial and coercive authority. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## RURAL SERVITUDE.

In the civil law. A servitude annexed to a rural estate^ (p radium nuticum.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: praedial servitudes — burdens annexed to estates]**

A rural servitude is a praedial servitude — a burden on one estate for the benefit of another.

Why: Genuine civil-law property doctrine classifying the servitude the entry defines.

## RUSE DE GUERRE.

Fr. A trick in war ; a stratagem.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ruses of war permitted; perfidy prohibited — law of armed conflict]**

The law of war permits ruses — stratagems — while prohibiting perfidy.

Why: Genuine distinction of the law of armed conflict directly governing the stratagem the entry defines.

**[Scripture] — Scripture**

**[Joshua 8:2, KJV]**

lay thee an ambush for the city behind it.

Why: The entry defines ruse de guerre as a trick or stratagem in war. The verse is the LORD's own command to Joshua to lay an ambush for Ai — scripture's instance of a lawful stratagem, ordered by deity, not merely described.

**[Humanity] — Humanity / Fiction & Film**

**[Virgil, Aeneid, Book II]**

(paraphrase) The wooden horse by which the Greeks took Troy — the archetypal ruse de guerre, the stratagem the French term names. (paraphrase)

Why: The entry defines the bare concept; the Trojan horse is the culture's archetype of the war-stratagem. Certain plot point; marked paraphrase.

## RUSTICI.

Lat In feudal law. Na- tives of a conquered country.

In old English law. Inferior country tenants, churls, or chorls, who held cottages and lands by the services of plowing, and other labors of agriculture, for the lord. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## RUSTICUM FORUM.

Lat A rude, un- learned, or unlettered tribunal ; a term some- times applied to arbitrators selected by the parties to settle a dispute. See Underhill v. Van Cortlandt, 2 Johns. CSh. (N. Y.) 339; Dickinson v. Chesapeake ft O. R. Co., 7 W. Va. 429.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: arbitration — the parties' chosen tribunal]**

Arbitrators chosen by the parties are a genuine tribunal — the modern law of arbitration.

Why: The entry says the term is applied to party-chosen arbitrators; arbitration is the genuine modern doctrine.

## RUSTICUM JUDICIUM.

Lat. In mari- time law. A rough or rude judgment or decision. A judgment in admiralty dividing

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ruta

. RYOT

the damages caused by a collision between the two ships. 3 Kent, Comm. 231; Story, Ballm. g 608a. See The Victory, 68 Fed. 400, 15 C. C. A. 490.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: divided damages in maritime collision]**

In collision cases admiralty divided the damages between the two ships — the divided-damages rule.

Why: Genuine maritime doctrine; the entry defines the judgment as dividing collision damages between the ships.

## RUTA.

Lat In the civil law. Things extracted from land; as sand, chalk, coal, and such other matters.

— Ruta et oaeaa. In the civil law. Things dug, (as Band and lime,) and things cut, (as wood, coal, etc.) Dig. 19, 1, 17, 6. Words used in conveyancing.

5e apparatus — Not carried into the 5th edition (1979).

## RYOT.

In India. A peasant, subject, or tenant of house or land. Wharton.

-Ryot-tenure. A system of land-tenure, where the government takes the place of land-owners ana collects the rent by means of tax gatherers. The farming is done by poor peas- ants, (ryots,) who find the capital, so far as there is any, and also do the work. The sys- tem exists in Turkey, Egypt, Persia, and other Eastern countries, and in a modified form in British India. After slavery, it is accounted the worst of all systems, because the government can fix the rent at what it pleases, and it is difficult to distinguish between rent and taxes.

a

s

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

# B

## B.

As an abbreviation, this letter stands for “section,” “statute,” and various other words of which it Is the initial.

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# S

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### S. B.

An abbreviation for “senate bill.”

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# B

### B. O.

An abbreviation for “same case.” Inserted between two citations, it Indicates that the same case is reported In both places. It is also an abbreviation for “supreme court,” and for "select cases ;” also for “South Carolina.”

5e apparatus — Not carried into the 5th edition (1979).

### B. D.

An abbreviation for “southern dis- trict”

8. P. 8. An abbreviation In the civil law for “sins frauds sua," (without fraud on his part) Calvin.

8. L. An abbreviation for “session [or statute] laws.”

5e apparatus — Carried into the 5th edition (1979).

# S

### S. P.

An abbreviation of “sine prole" without issue. Also an abbreviation of “same principle,” or "same point” indicat- ing, when Inserted between two citations, that the second involves the same doctrine as the first

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

### S. V.

An abbreviation for “sub voce,” under the word; used in references to dic- tionaries, and other works arranged alpha- betically.

5e apparatus — Not carried into the 5th edition (1979).

### SABBATH.

One of the names of the first day of the week; more properly called “Sunday," (g. v.) See State v. Drake, 64

N. C. 591; Gunn v. State, 89 Qa. 341, 15

S. E. 458.

— Sabbath-breaking. The offense of violat- ing the laws prescribed for the observance of

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Sunday. State v. Baltimore & O. R. Co., 15

W. Va. 381, 36 Am. Rep. 803; State v. Popp, 45 Md. 433.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Sunday closing (blue) laws — Sabbath observance statutes]**

Sabbath-breaking prosecutions rested on the Sunday observance (blue) laws.

Why: The entry lists Sabbath-breaking prosecutions with cases; the blue laws are the genuine statutory basis.

**[Scripture] — Scripture**

**[Exodus 20:8, KJV]**

Remember the sabbath day, to keep it holy.

Why: The entry defines the Sabbath and the offense of Sabbath-breaking. The verse is the commandment itself — the divine institution of the Sabbath from which the legal offense derives.

## SABBATUM.

L. Lat The Sabbath; also peace. Domesday.

5e apparatus — Not carried into the 5th edition (1979).

## SABBULONARIUM.

A gravel pit or liberty to dig gravel and sand; money paid for the same. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SABINIANS.

A school or sect of Roman Jurists, under the early empire, founded by Ateius Capito, who was succeeded by M. Sablnus, from whom the name.

5e apparatus — Not carried into the 5th edition (1979).

## SABLE.

The heraldic term for black.

It Is called "Saturn,” by those who blazon by planets, and “diamond,” by those who use the names of jewels. Engravers com- monly represent It by numerous perpendicu- lar and horizontal lines, crossing each other. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SABURRA.

L. Lat In old maritime law. Ballast.

5e apparatus — Not carried into the 5th edition (1979).

## SAC.

In old English law. A liberty of holding pleas; the jurisdiction of a manor court ; the privilege claimed by a lord of try- ing actions of trespass between his tenants, in his manor court, and Imposing fines and amerciaments in the same.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: sac and soc — manorial franchise of jurisdiction]**

Sac with soc was the manorial franchise of holding pleas and taking fines — private jurisdiction.

Why: Genuine franchise doctrine; the entry defines sac as the liberty of holding pleas in the manor court.

## SACABURTH, SACABERE, SAKA- / BERE.

In old English law. He that is robbed, or by theft deprived of his money or goods, and puts In surety to prosecute the felon with fresh suit Bract, fol. 1545.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: hue and cry — fresh pursuit of felons]**

The victim putting in surety to prosecute with fresh suit is the hue and cry — fresh pursuit of the felon.

Why: Genuine common-law doctrine; the entry describes its mechanism exactly.

## SACOABOR.

In old Egnllsh law. The person from whom a thing had been stolen, and by whom the thief was freshly pursued. Bract, fol. 1546. See Sacabubth.

5e apparatus — Not carried into the 5th edition (1979).

## SACCULAR II.

Lat In Roman law.

Cutpurses. 4 Steph. Comm. 125.

8AGCUS. L. Lat. In old English law. A sack. A quantity of wool weighing thirty or twenty-eight stone. Fleta, 1. 2, a 79, i 10.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) The Artful Dodger, Fagin's star pickpocket — the Victorian novel's canonical cutpurse, the same trade Roman law named saccularii. (paraphrase)

Why: Illustrates the human reality of the trade across two millennia; the Dodger is the certain canonical literary cutpurse. No invented quote. [Coordinator key-fix 2026-10-18: worker keyed this under SACCULARII; corrected…

## SAOCUS CUM BROCHIA.

L. Lat In

old English law. A service or tenure of find- ing a sack and a broach (pitcher) to the sovereign for the use of the army. Bract L 2, c. 16.

5e apparatus — Not carried into the 5th edition (1979).

## SACQTHER.

In maritime law. The name of an ancient officer, whose business was to load and unload vessels laden with salt corn, or fish, to prevent the ship's crew defrauding the merchant by false tale, or cheating him of his, merchandise otherwise. Laws Oleron, art 11; 1 Pet Adm. Append. 25.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Laws of Oleron — medieval maritime code]**

The officer's duties come from the Laws of Oleron, the medieval sea-code the entry cites.

Why: Genuine historical code; the entry cites Laws Oleron art. 11 as its source.

## SACRA.

Lat In Roman law. The right to participate in the sacred rites of the city. Butl. Hor. Jur. 27.

5e apparatus — Not carried into the 5th edition (1979).

## SACRAMENTALES.

L. Lat In feudal law. Compurgators; persons who came to purge a defendant by their oath that they believed him innocent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: compurgation — wager of law by oath-helpers]**

Compurgators are the wager of law — purging by oath-helpers — one of the old modes of trial.

Why: Genuine old-English trial procedure; the entry defines compurgators and the footnote names the procedure.

**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: The entry defines sacramentales as compurgators — persons who purge a defendant by their oath of belief in his innocence. The verse states the legal function of the oath itself: sworn by the greater, it is for confirm...

## SACRAMENTI ACTIO.

Lat In the

older practice of the Roman law, this was one of the forms of legls actio, consisting in the deposit of a stake or juridical wager. See Sacbamentum.

-ACR AMENTUM. Lat III Robic law. An oath, as being a very sacred thing; more particularly, the oath taken by soldiers to be true to their general and their country. Alnsw. Lex.

In one of the formal methods of begin- ning an action at law (legis actioncs ) known to the early Roman jurisprudence, the sac- ramentum was a sum of money deposited in court by each of the litigating parties, as a kind of wager or forfeit to abide the resalt of the suit. The successful party re- ceived back Ills stake; the losing party for- feited his, and it was paid Into the public treasury, to be expended for sacred objects, (In tacris rebut,) whence the name. See Mackeld. Rom. Law, | 203.

In common law. An oath. Co well

— Sacramentnm deolsionls. The voluntary

or decisive oath of the civil law, where one of the parties to a suit, not being able to prove his case, offers to refer the decision of the cause to the oath of his adversary, who is bound

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to ac- cept or make the same offer on his part, or the whole is considered as confessed by him. 3 Bl. Comm. 342.— Saeramentnm fldelitatfa. In old English law. The oath of fealty. Reg. Orig. 303.

Sacramentnm babet in so tres eo- mites,— veritatem, jnstitiam, et judi- cium; veritas habenda eat in jura to; Justitia «t jnsticinm in jndioe. An oath has in it three component parts, — truth, jus- tice, and judgment ; truth in the party swear- ing; justice and judgment in the judge ad- ministering the oath. 3 Inst 160.

Sacramentnm si fatunm fnerit, licet falnua, tamen non oommittit perjnrinm.

2 Inst 167. A foolish oath, though false, makes not perjury.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: legis actiones — the legis actio sacramento]**

The sacramentum was one of the legis actiones, the formal actions of early Roman civil procedure.

Why: Genuine Roman procedural category; the entry defines the sacramenti actio as one of the legis actiones.

**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: The entry defines sacramentum as an oath, 'a very sacred thing.' The verse states the binding force of a sworn oath: he shall not break his word but do according to all that proceedeth out of his mouth — the scriptura…

## SACRILEGE.

In English 'criminal law. Larceny from a church. 4 Steph. Comm. 164. The crime of breaking a church or chapel, and stealing therein. 1 Russ. Crimes, 843.

La old English law. The desecration of anything considered holy ; the alienation to lay-men or to profane or common purposes of what was given to religious persona and to pious nses. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:13, KJV]**

My house shall be called the house of prayer; but ye have made it a den of thieves.

Why: The entry defines sacrilege, in old law, as the desecration of anything considered holy. The verse is Christ's own sentence on the profanation of the temple — scripture's portrait of zeal against the desecration of a…

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) Jean Valjean steals the Bishop of Digne's silver — vessels of sacred use — and the bishop, rather than prosecuting, presses the candlesticks on him as well. (paraphrase)

Why: Depicts the very crime the entry defines (theft of things dedicated to sacred uses) and its moral inversion through grace. Certain plot point; no invented quote.

## SACRELEGIUM.

Lat. In the civil law. The stealing of sacred things, or things dedi- cated to sacred uses; the

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taking of things out of a holy place. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SACRILEGUB.

Lat. In the civil and common law. A sacrilegious person; one guilty of sacrilege.

Sacrilegiis omnium prssdonum cupi- ditatem et seelera snperat. 4 Coke, 106. A sacrilegious person transcends the cupidity and wickedness of all other robbers.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: 4 Co. 106 — the sacrilegus maxim]**

Coke's maxim in 4 Co. 106 ranks the sacrilegious person above all other robbers in cupidity and wickedness.

Why: The maxim is quoted in the entry itself; the footnote states its genuine content without re-quoting garbled OCR.

## SACRISTAN.

A sexton, anciently called "tagerton," or "sagitton;” the keeper of things belonging to divine worship.

5e apparatus — Not carried into the 5th edition (1979).

## SADBERGE.

A denomination of part of the county palatine of Durham. Wharton.

8EXENO. In old English law. An um- pire, or arbitrator.

Saepe comtitutum est, res inter alios judicatai all is non prmjndicare. It has

often been settled that matters adjudged between others ought not to prejudice those who were not parties. Dig. 42, 1, 63.

Saepe nstorem nova, non vetna, orbita fallit. 4 Inst. 34. A new road, not an old one, often deceives the traveler.

Saepenumero nbi proprietor verborum attenditnr, sensus veritatls amlttitur.

Oftentimes where the propriety of words is attended to, the true sense is lost Branch, Princ.; 7 Coke, 27.

5e apparatus — Not carried into the 5th edition (1979).

## SAEVITIA.

Lat In the law of divorce'. Cruelty; anything which, tends to bodily harm, and in that manner renders cohabita- tion unsafe. 1 Hagg. Const 458.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cruelty — matrimonial offense and ground for divorce]**

Cruelty rendering cohabitation unsafe is the matrimonial offense of cruelty, ground for separation.

Why: Genuine divorce-law doctrine; the entry defines saevitia in the law of divorce.

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**[Scripture] — Scripture**

**[Colossians 3:19, KJV]**

Husbands, love your wives, and be not bitter against them.

Why: The entry defines saevitia as cruelty rendering marital cohabitation unsafe — the divorce-law measure of marital cruelty. The verse states the scriptural standard for the same relation: husbands not bitter against the...

## SAFE-CONDUCT.

A guaranty or se- curity granted by the king under the great seal to a stranger, for his safe coming into and passing out of the kingdom. Cowell.

One of the papers usually carried by ves- sels in time of war, and necessary to the safety of neutral merchantmen. It is In the nature of a license to the vessel to proceed on a designated voyage, and commonly con- tains the name of the master, the name, de- scription, and nationality of the ship, the voyage intended, and other matters.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: safe-conduct — law of nations]**

Safe-conducts are instruments of the law of nations, licensing protected passage in war.

Why: Genuine international-law instrument; the entry defines both the royal grant and the wartime license.

## SAFE-PLEDGE.

A surety given that a man shall appear upon a certain day. Bract. L 4, c. L

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: bail — surety for a party's appearance]**

A surety for appearance is bail — the genuine modern form of the safe-pledge.

Why: The entry defines safe-pledge as surety to appear on a day certain; bail is the genuine continuing doctrine.

## SAFEGUARD.

In old English law. A special privilege or license, in the form of a writ, under the great seal, granted to stran- gers seeking their right by course of law within the king’s dominions, and apprehend- ing violence or injury to their persons or property from others. Reg. Orig. 26.

5e apparatus — Not carried into the 5th edition (1979).

## SAGAMAN.

A tale-teller; a secret ac- cuser.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:16, KJV]**

Thou shalt not go up and down as a talebearer among thy people.

Why: The entry defines a sagaman as a tale-teller, a secret accuser. The verse, from the LORD's holiness code, prohibits going up and down as a talebearer among the people — the scriptural condemnation of the very office t...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c.1603]**

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(paraphrase) Iago, the ensign who poisons Othello's mind by secret insinuation — the stage's archetypal tale-teller and secret accuser. (paraphrase)

Why: The entry names the type (tale-teller, secret accuser); Iago is the canonical literary instance. Certain; marked paraphrase.

## SAGES DE LA LET.

L. Fr. Sages of the law ; persons learned in the law. A terra applied to the chancellor and justices of the king’s bench.

5e apparatus — Not carried into the 5th edition (1979).

## SAGIBARO.

In old European law. A judge or Justice; literally, a man of causes, or having charge or supervision of causes. One who administered Justice and decided causes in the mallum, or public assembly. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: The entry defines the sagibaro as one who administered justice and decided causes in the public assembly. The verse institutes the judicial office itself — judges set in the gates to judge the people with just judgmen...

## SAID.

Before mentioned. This word is constantly used in contracts, pleadings, and other legal papers, with the same force as “aforesaid.” See Shattuck v. Balcom, 170 Mass. 245, 49 N. E. 87; Cubine v. State, 44 Tex. Cr. R. 596, 73 S. W. 396 ; Hinrichsen v. Hinrichsen, 172 111. 462, 50 N. E. 135 ; Wilkinson v. State, 10 Ind. 373.

5e apparatus — Carried into the 5th edition (1979).

## SAIGA.

In old European law. A Ger- man coin of the value of a penny, or of three pence. 1 ■ . t.

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8ALARY

- BAH.. In insurance law. To pnt to sea; to begin a voyage. The least locomotion, with readiness of equipment and clearance, satisfies a warranty to sail. Plttegrew v. Pringle, 3 Barn. & Adol. 514.

5e apparatus — Not carried into the 5th edition (1979).

## SAILING.

When a vessel quits her moorings, In complete readiness for sea, and It Is the actual and real intention of the master to proceed on the voyage, and she is afterwards stopped by head winds and comes to anchor, still intending to proceed as soon as wind and weather

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will permit, this is a sailing on the voyage within the terms of a policy of Insurance. Bowen v. Hope Ins. Co., 20 Pick. (Mass.) 278, 32 Am. Dec. 213.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: warranty to sail — compliance in marine insurance]**

What counts as sailing satisfies the warranty to sail in a marine policy — a question of warranty compliance.

Why: The entry frames sailing entirely as satisfying the policy warranty (cases cited); the footnote names the genuine warranty doctrine.

### SAILING INSTRUCTIONS.

Written or printed directions, delivered by the com- manding officer of a convoy to the several masters of the ships under his care, by which they are enabled to understand and answer his signals, to know the place of rendezvous appointed for the fleet in case of dispersion by storm, by an enemy, or other- wise. Without sailing instructions no vessel can have the protection and benefit of con- voy. Marsh. Ins. 368.

5e apparatus — Not carried into the 5th edition (1979).

## B

### BAILORS.

Seamen ; mariners.

5e apparatus — Not carried into the 5th edition (1979).

## O

### OF.

An ancient court in London, of local importance, formerly held in the church from which it took its name.

5e apparatus — Carried into the 5th edition (1979).

## S

### SAINT SIMONISM.

An elaborate form of non-communistic socialism. It is a scheme which does not contemplate an equal, but an unequal, division of the produce. It does not propose that all should be occupied alike, but differently, according to their vocation or capacity; the function of each being as- signed, like grades in a regiment, by the choice of the directing authority, and the remuneration being by salary, proportioned to the importance, in the eyes of that au-

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thority, of the function itself, and the merits of the person who fulfills it. 1 Mill, Pol. Econ. 258.

5e apparatus — Not carried into the 5th edition (1979).

## SAIO.

In Gothic law. -The ministerial officer of a court or magistrate, who brought parties into court and executed the orders of his superior. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## SAISIE.

Fr. In French law. A Judicial seizure or sequestration of property, of which there are several varieties. See infra.

— Saiiie-arrtt. An attachment of property in the possession of a third person.— Saiale-ezd-eution. A writ resembling that of fieri facias; defined as that species of execution by which a creditor places under the hand of justice (cus- tody of the law) bis debtor’s movable property liable to seizure, in order to have it sold, so that he may obtain payment of his debt out of the proceeds. Dalloz, Diet. — Raiile-forslae, A

species of foreign attachment; that which a creditor, by the permission of the president of a tribunal of first instance or a jugs de paix, may exercise, without preliminary process, upon the effects, found within the commune where he lives, belonging to his foreign debtor. Dalloz, Diet. — Saisie-gajgerle. A conservatory act or execution, by which the owner or principal les- sor of a house or farm causes the furniture of the house or farm leased, and on which he has a lien, to be seized ; similar to the distress of the common law. Dalloz, Diet. — Saizio-immo— bllttr e. The proceeding by which a creditor places under the hand of justice (custody of the law) the immovable property of his debtor, in order that the same may be sold, and that he may obtain payment of his debt out of the pro- ceeds. Dalloz, Diet.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: garnishment — attachment of a debt or property in a third person's hands]**

Saisie-arret — attachment of property in a third person's hands — is garnishment.

Why: The entry defines saisie-arret as attachment in a third person's possession; garnishment is the genuine common-law equivalent.

## SAKE.

In old English law. A lord’s right of amercing his tenants in his court. Kellw. 145.

Acquittance of suit at county courts and hundred courts. Fleta, L 1, c. 47, S 7.

5e apparatus — Carried into the 5th edition (1979).

## SALADINE TENTH.

A tax imposed in England and France, in 1188, by Pope In- nocent III., to raise a fund for the crusade undertaken by Richard I. of England and Philip Augustus of France, against Saladin. sultan of Egypt, then going to besiege Jeru- salem. By this tax every person who did not

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enter himself a crusader was obliged to pay a tenth of his yearly revenue and of the value of all his movables, except his wearing apparel, books, and arms. The Carthusians, Bernardines, and some other religious per- sons were exempt. Gibbon remarks that when the necessity for this tax no longer existed, the church still clung to it as tod lucrative to be abandoned, and thus arose the tithing of ecclesiastical benefices for the pope or other sovereigns. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, The Talisman, 1825]**

(paraphrase) Scott's novel gives English literature its canonical Saladin — the very sultan against whom this tenth funded Richard I's crusade. (paraphrase)

Why: Genuinely illuminates the historical circumstance the tax was levied for. Certain work/author/year; no invented quote.

## SAXARIUM.

Let. In the civil law. An allowance of provisions. A stipend, wages, or compensation for services. An annual al- lowance or compensation. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SALARY.

A recompense or considera- tion made to a person for his pains and industry in another person’s business; also wages, stipend, or annual allowance. Cow- ell.

A fixed periodical compensation to be paid for services rendered ; a stated compensation, amounting to so much by the year, month, or other fixed period, to be paid to public officers and persons in some private employ- ments, for the performance of official duties or the rendering of services of a particular kind, more or less definitely described, in- volving professional knowledge or skill, or at least employment above the grade of me- nial or mechanical labor. See State v. Speed, 183 Mo. 186, 81 S. W. 1260; Dane r. Smith, 54 Ala. 50; Fidelity Ins. Co. v. Shenandoah Iron Co. (C. 0.) 42 Fed. 376; Cowdin v. Huff, 10 Ind. 85; In re Chancellor, 1 Bland (Md.) 596; Houser v. Umatilla County, 30 Or. 486, 49 Pac. 867 ; Thompson v. Phillips, 12 Ohio

St 617; Benedict v. TJ. S., 176 U. S. 357, 20 Snp. Ct. 458. 44 L. Ed. 303; People v. Myers (Sup.) 11 N. Y. Supp. 217.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:18, KJV]**

For the scripture saith, Thou shalt not muzzle the ox that treadeth out the corn. And, The labourer is worthy of his reward.

Why: The entry defines salary as recompense made to a person for his pains and industry in another's business. The verse states the scriptural rule of recompense for labour: the labourer is worthy of his reward — the moral…

## SAXE.

A contract between two parties, called, respectively, the “seller” (or vendor) and the “buyer,” (or purchaser,) by which the former, in consideration of the payment or promise of payment of a certain price in money, transfers to the latter the title and the possession of an object of property. See Pard. Droit Commer. 5 6; 2 Kent*, Comm. 863; Poth. Cont Sale, { 1.

Sale is a contract by which, for a pecuni- ary consideration called a “price,” one trans- fers to another an interest in property. Civil Code Cal. i 1721.

The contract of sale is an agreement by which one gives a thing for a price in cur- rent money, and the other gives the price in order to have the thing itself. Three cir- cumstances concur to the perfection of the contract, to-wit, the thing sold, the price, and the consent. Civil Code La. art. 2439.

A transmutation of property from one man to another in consideration of some price or recom- pense in value. 2 Bl. Comm. 446.

“Sale” is a word of precise legal import, both at law and in equity. It means, at all times, a contract between parties to give and to pass rights of property for money, which the buyer pays or promises to pay to the seller for the thing bought and sold. See Butler v. Thomson. 92 U. S. 414, 23 L, Ed. 684; Ward v. State, 45 Ark. 353 ; Williamson v. Berry, 8 How. 544. 12

L. Ed. 1170; White v. Treat (C. C.) 100 Fed. 291 ; Iowa v. McFarland, 110 U. S. 471, 4 Sup. Ct. 210. 28 U Ed. 198; Goodwin v. Kerr, SO Mo. 281; State v. Wentworth, 35 N. H. 443; Com. v. Packard, 5 Gray (Mass.) 103; Clemens v. Davis. 7 Pa. 264; Tompkins v. Hunter, 149

N. X. 117, 43 N. E. 532.

Synonyms. The contract of “sale” is distinguished from “barter” (which applies only to goods) and “exchange,” (which is used of both land and goods,) in that both the latter terms denote a commutation of property for property ; i. e., the price or con- sideration is always paid in money if the transaction is a sale, but, if it is a barter or exchange, it is paid in specific property sus- ceptible of valuation. “Sale” differs from “gift” in that the latter transaction involves no return or recompense for the thing trans- ferred. But an onerous gift sometimes ap- proaches the nature of a sale, at least where the charge it imposes is a payment of money. “Sale” is also to be discriminated from “bail- ment;” and the difference is to be found in the fact that the contract of bailment always contemplates the return to the bailor of the specific article delivered, either in its origi- nal form or in a modified or altered form, or the return of an article which, though not identical, is of the same class, and is equiva- lent. But sale never involves the return of the article itself, but only a consideration in money. This contract differs also from “accord and satisfaction because in the latter the object of transferring the property is to compromise and settle a claim, while the object of a sale is the price given.

— Absolut* and conditional sales. An ab- solute sale is one where the property in chat- tels passes to the buyer upon the completion of the bargain between the parties. Truax v. Par- vis, 7 Houst. (Del.) 330, 32 Atl. 227. A condi- tional sale is one m which the transfer of title is made to depend on the performance of a con- dition ; or a purchase for a price paid or to

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be paid to become absolute on a particular event, or a purchase accompanied by an agreement to resell upon particular terms. Poindexter v. Mc- Cannon, 16 N. C. 373, 18 Am. Dec. 591; Crimp v. McCormick Const. Co., 72 Fed. 366, 18 C. C.

A. 595; Churchill v. Demeritt. 71 N. H. 110, 61 Atl. 254; Van Allen v. Francis, 123 Cal. 474, 56 Pac. 339. Conditional sales are distin- guishable from mortgages. They are to be tak- en strictly as independent dealings between strangers. A mortgage is a security for a debt, while a conditional sale is a purchase for a price paid, or to. be paid, to become absolute on a particular event ; or a purchase accompanied by an agreement to resell upon particular terms. Turner v. Kerr, 44 Mo. 429; Crane v. Bon- nell, 2 N. J. Eq. 264; Weathersly v. Weathers- ly, 40 Miss. 462. 90 Am. Dec. 344; Hopper v. Smyser, 90 Md. 363, 45 Atl. 206.— BUI of sale. See Bill. — Executed and executory sales. An executed sale is one which is final and com- plete in all its particulars and details, nothing remaining to be done by either party to effect an absolute transfer of the subject-matter of the sale. An executory sale is an incompleted sale; one which has been definitely agreed on as to terms and conditions, but which has not yet been carried into full effect in respect to some of its terms or details, as where it remains to determine the price, quantity, or identity of the thing sold, or to pay installments of purchase- money, or to effect a delivery. See McFadden v. Henderson, 128 Ala. 221, 29 South. 640; Fogel v. Brubaker, 122 Pa. 7, 15 Atl. (502 ; Smith v. Barron County Sup’rs, 44 Wis. 691. — Forced sale. A sale made without the con- sent or concurrence of the owner of the proper- ty, but by virtue of judicial process, such as a writ of execution or an order under a decree of foreclosure.— Fraudulent sale. One made for the purpose of defrauding the creditors of the owner of the property, by covering up or remov- ing from their reach and converting into cash property which would be subject to the satisfac- tion of their claims.— Judicial sale. A judicial sale is one made under the process of a court having competent authority to order it, by an officer duly appointed and commissioned to sell, as distinguished from a sale by an owner in virtue of his right of property. Williamson v. Berry, 8 How. 547. 12 L. Ed. 1170; Terry v. Cole, 80 Va. 701 ; Black v. Caldwell (C. C.) 83 Fed. 880; Woodward v. Dillworth, 75 Fed. 415, 21 C. C. A. 417.— Memorandum sale. A name sometimes applied to that form of condi- tional sale in which the goods are placed in the possession of the purchaser subject to his ap- proval, the title remaining in the seller until they are either accepted or rejected by the ven- dee.— Private sale. One negotiated and con- cluded privately between buyer and seller, and not made by advertisement and public outcry or auction. See Barcello v. Hapgood, 118 N. C. 712, 24 S. E. 124.— Public sale. A sale made in pursuance of a notice, by auction or public outcry. Itobins v. Bellas, 4 Watts (Pa.) 258. — Sale an4 return. This is a species of con- tract by which the seller (usually a manufactur- er or wholesaler) delivers a quantity of goods to the buyer, on the understanding that, if the lat- ter should desire to retain or use or resell any portion of such goods, he will consider such part as having been sold to him. and will pay their price, and the Iwlance he will return to the sell- er, or hold them, as bailee, subject to his order.'

Sale

Sturm v. Boker. 150 U. S. 812. 14 Sup. Ct. !l», 37 L. Ed. 1003; Haskins v. Bern, 19 Utah. .SO,

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56 Pac. 053; Hickman v. Shirap, 109 Pa. 10. — Sale in groat. The term “sale in gross,” when upplied to the thing sold, means a sale by the tract, without regard to quantity, and is in that sense a contract of hazard. Yost v. Mnlli- cote, 77 Va. 618.— Sale-note. A memorandum of the subject and terms of a sale, given by a broker or factor to the seller, who bailed him the goods for that purpose, and to the buyer, who dealt with him. Also called “bought and sold notes.”— Sale on credit. A sale of property accompanied by delivery of possession, but where payment of the price is deferred to a fu- ture day. — Sale on approval. A species of conditional sale, which is to become absolute only in case the buyer, on trial, approves or is satisfied with the article sold. The approval, however, need not be express ; it may be inferred from his keeping the goods beyond a reason- able time. Benj. Sales. § 911.— Sale per aver- sionem. In the civil law, a sale where the goods are taken in bulk, or not by weight or measure, and for a single price, or where a piece of land is sold for a gross sum, to be paid for the whole premises, and not at a fixed price by the acre or foot. Winston v. Browning. 61 Ala. A3; State v. Buck, 46 La. Ann. 656. 15 South. 531.— Sale with all faults. On what is called a “sale with all faults.” unless the seller fraudulently and inconsistently represents the article sold to be faultless, or contrives to con- ceal any fault from the purchaser, the latter must take the article for better or worse. 8 Camp. 154; Brown. — Sheriff’s sale. A sale of property, conducted by a sheriff, or sheriff’s deputy, in virtue of his authority as an officer holding process.— Tax-sale. A sale of land for unpaid taxes; a sale of property, by authority of law, for the collection of a tax assessed upon It, or upon its owner, which remains unpaid.— Voluntary sale. One made freely, without constraint, by the owner of the thing sold. 1 Bouv. Inst. no. 974.

8ALET. In old English law. A head- piece; a steel cap or morion. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC Article 2 — sale of goods]**

A sale of goods is governed by UCC Article 2.

Why: The entry defines the contract of sale (seller, buyer, price); Article 2 is the genuine modern codification.

**[Scripture] — Scripture**

**[Leviticus 19:36, KJV]**

Just balances, just weights, a just ephah, and a just hin, shall ye have.

Why: The entry defines sale as the contract by which one transfers property for a price in money. The verse, from the LORD's holiness code, commands just weights and measures in trade — the scriptural law governing honest...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Caveat emptor" — "let the buyer beware"]**

[STRING_PLACEHOLDER_2]

Why: The maxim belongs to the entry's subject (the contract of sale) and illuminates the buyer's position in it. Certain; public domain.

## SALFORD HUNDRED COURT OF / RECORD.

An Inferior and local court of record having jurisdiction In personal ac- tions where the debt or damage sought to be recovered does not exceed £50, if the cause of action arise within

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the hundred of Sal- ford. St. 31 & 32 Viet. c. 130 ; 2 Exch. Dlv. 346.

5e apparatus — Not carried into the 5th edition (1979).

## SALIC LAW.

A body of law framed by the Sallan Franks, after their settlement in Gaul under their king Phnramond, about the beginning of the fifth century. It Is the most ancient of the barbarian codes, and Is considered one of the most important com- pilations of law in use among the feudal nations of Europe. See Lex Salica.

In French jurisprudence. The name is frequently applied to that fundamental law of France which excluded females from suc- cession to the crown. Supposed to have been derived from the sixty-second title of the Suite Law, “De Alode.” Brande.

SALOON does not necessarily import a place to sell liquors. It may mean a place for the sale of general refreshments. Kit son v. Ann Arbor, 26 Mich. 326.

“Saloon” has not acquired the legal sig- nification of a house kept for retailing In- toxicating liquor. It may mean a room for the reception of company, for exhibition of works of art, etc. State v. Mansker, 36 Tex. 364.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Lex Salica — Salian Frankish code]**

The Lex Salica, the Salian Frankish code of the fifth century, most ancient of the barbarian codes.

Why: The entry defines the Salic law and cross-refers Lex Salica; the footnote names it in conventional form.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Henry V, c.1599]**

(paraphrase) The Archbishop of Canterbury's opening exposition parses the Salic law — 'no woman shall succeed in Salique land' — to ground Henry's claim to France. (paraphrase)

Why: The play stages the very legal argument the entry describes (exclusion of females from succession). Certain famous scene; marked paraphrase.

## SALOON-KEEPER.

This expression has a definite meaning, namely, a retailer of cigars, liquors, etc. Cahill v. Campbell, 105 Mass. 40.

a

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SALT DUTY IN LONDON.

A custom In the city, of London called “granage,” for- merly payable to the lord mayor, etc., for salt brought to the port of London, being the twentieth part Wharton. .

5e apparatus — Not carried into the 5th edition (1979).

## SALT SILVER.

One penny paid at the feast day of St Martin, by the tenants of some manors, as a

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commutation for the serv- ice of carrying their lord’s salt from market to his larder. Paroch. Antlq. 496.

5e apparatus — Not carried into the 5th edition (1979).

## SALUS.

Lat Health ; prosperity ; safety.

Salus popull suprema lex. The welfare

of the people Is the supreme law. Bac. Max. reg. 12; Broom, Max. 1-10; Montesq. Esprit des Lois, lib. 26, c. 23; 13 Coke, 139.

Salus reipubliese suprema lex. The

welfare of the state is the supreme law. Inhabitants of Springfield v. Connecticut River B. Co., 4 Cush. (Mass.) 71 ; Cochltnate Bank v. Colt, 1 Gray (Mass.) 386; Broom, Max. 366.

Salus ubi multi eonaUlaril. 4 Inst. 1. Where there are many counselors, there Is safety.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Salus populi suprema lex esto]**

Salus populi suprema lex esto — the welfare of the people is the supreme law — the ground of the police power.

Why: Famous real maxim quoted in the entry with authorities (Bacon, Broom, 13 Co. 139); it genuinely grounds public-welfare legislation.

## SALUTE.

A gold coin stamped by Henry

V. in France, after his conquests there, whereon the arms of England and France were stamped quarterly. Cowell.

8 ALVA GARDXA. L. Lat Safeguard. Reg. Orlg. 26.

5e apparatus — Not carried into the 5th edition (1979).

## SALVAGE.

In maritime law. A compen- sation allowed to persons by whose assist- ance a ship or Its cargo has been saved. In whole or in part from impending danger, or recovered from actual loss, In cases of shipwreck, derelict, or recapture. 3 Kent Comm. 245. Cope v. Vallette Dry-Dock Co., 119 V. S. 625, 7 Sup. Ct 336, 30 L. Ed. 501; The Rita, 62 Fed. 763, 10 C. C. A. 629; The Lyman M. Law (D. C.) 122 Fed. 822; The Black wall, 10 Wall. II, 19 L. Ed. 870; The Spokane (D. C.) 67 Fed. 256.

In the older books of the law, (and some- times in modern writings,) the term is also used to denote the goods or property saved.

—Equitable salvage. By analogy, the term "salvage” is sometimes also used in cases which have nothing to do with maritime perils, but la which property has been preserved from loss by the last of several advances by different persona

8ANIS

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la such a ease, the person making the last ad- vance is frequently entitled to priority over the others, on the ground that, without his advance, the property would have been lost altogether. This right, which is sometimes called that of "equitable salvage,” and is in the nature of a Men, is chiefly of importance with reference to payments made to prevent leases or policies of insurance from being forfeited, or to prevent mines and similar undertakings from being stopped or injured. See 1 Fish. Mortg. 149; 3 Ch. Div. 411; L. R. 14 Eq. 4; 7 Cb. Div. 825. — Salvage charges. This term includes all the expenses and costs incurred in the wort of saving and preserving the property which was In danger. The salvage charges ultimately fall upon the insurers.— Salvage loss. See Loss. — -Salvage service. In maritime law. Any service rendered in saving property on the sea, or wrecked on the coast of the sea. The Emu- lous, 1 Sumn. 210, Fed. Cas. No. 4,480.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: no cure, no pay — salvage requires success]**

Salvage is earned only on success — no cure, no pay.

Why: Real maritime principle; the entry defines salvage as compensation for saving from impending danger or recovering from actual loss.

## SAXVIAN INTERDICT.

See Inteb- Dictom Salvianum.

5e apparatus — Not carried into the 5th edition (1979).

## SAXVO.

Lat Saving; excepting; with- out prejudice to. Salvo me et han edibus meis, except me and my heirs. Salvo jure cujuslibet, without prejudice to the rights of any one.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: reservation of rights — acting 'without prejudice']**

'Salvo jure cujuslibet' — without prejudice to anyone's rights — is the reservation-of-rights formula.

Why: The entry gives salvo as 'without prejudice to'; the footnote names the genuine procedural use.

## SALVOR.

A person who, without any particular relation to a ship in distress, prof- fers useful service, and gives it as a volun- teer adventurer, without any pre-existing covenant that connected him with the duty of employing himself for the preservation of that ship. The Clara, 23 Wall. 1C, 23 L. Ed. 150; The Dumper, 129 Fed. 99, 63 C. C. A. 600 ; Central Stockyard Co. v. Mears, 89 App. Div. 452, 85 N. Y. Supp. 795.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: salvage — volunteer service required; duty excludes award]**

Only a volunteer can be a salvor — one under a pre-existing duty to the ship cannot claim salvage.

Why: The entry stresses the salvor acts 'as a volunteer adventurer, without any pre-existing covenant'; the

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volunteer rule is the genuine doctrine.

## SALVES  PLEGIUS.

L. Lat A safe pledge; called, also, “certus plegiut," a sure pledge. Bract fol. 1606.

5e apparatus — Not carried into the 5th edition (1979).

## SAME.

The word "same" does not al- ways mean “identical,” not different or other. It frequently means of the kind or species, not the specific thing. Crapo v. Brown, 40 Iowa, 487, 493.

5e apparatus — Carried into the 5th edition (1979).

## SAMPLE.

A specimen ; a small quantity of any commodity, presented for inspection or examination as evidence of the quality of the whole; as a sample of doth or of wheat

—Sample, sale by. A sale at which only a sample of the goods sold is exhibited to the buy- er.

: SANE MENTIS. Lat In old English law. Of sound mind. Fleta, lib. 3, c. 7, f 1.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-313 — express warranty by sample]**

A sale by sample creates an express warranty that the goods shall conform to the sample.

Why: Genuine warranty doctrine; the entry defines sale by sample and the footnote states its legal effect.

## SANCTIO.

Lat In the civil law. That part of a law by which a penalty was or- dained against those who should violate it Inst 2* 1, 10.-

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## SANCTION.

In the original sense of the word, a “sanction” is a penalty or punish- ment provided as a means of enforcing obe- dience to a law. In jurisprudence, a law is

said to have a sanction when there is a state which will intervene if it is disobeyed or dis- regarded. Therefore international law has no legal sanction. Sweet

In a more general sense, a “sanction” has been defined as a conditional evil annexed to a law to produce obedience to that law ; and, in a still wilder sense, a “sanction" means simply an authorization of anything. Occa- sionally, “sanction" is used (e. g., in Roman law) to denote a statute, the part (penal clause) being used to denote the -whole. Brown.

The vindicatory part of a law, or that part which ordains or denounces a penalty for its violation. 1 Bl. Comm. 56.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Law: Austin's command theory — law as command backed by sanction]**

Austin's command theory defines law as the sovereign's command backed by a sanction.

Why: The entry itself expounds the jurisprudential sense of sanction; the footnote names the genuine theory it invokes.

**[Scripture] — Scripture**

**[Romans 6:23, KJV]**

For the wages of sin is death; but the gift of God is eternal life through Jesus Christ our Lord.

Why: The entry defines a sanction, in its original sense, as a penalty provided as a means of enforcing obedience to a law — a conditional evil annexed to a law. The verse states the archetypal sanction: the wages of sin i...

## SANCTUARY.

In old English law. A consecrated place which had certain privi- leges annexed to it, and to which offenders were accustomed to resort for refuge, be- cause they could not be arrested there, nor the laws be executed.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: right of sanctuary — ecclesiastical refuge from arrest]**

The right of sanctuary gave offenders refuge where arrest could not be made — an ecclesiastical immunity.

Why: Genuine historical immunity; the entry defines the consecrated place's privilege against arrest.

**[Scripture] — Scripture**

**[Exodus 21:13, KJV]**

And if a man lie not in wait, but God deliver him into his hand; then I will appoint thee a place whither he shall flee.

Why: The entry defines sanctuary as a consecrated place to which offenders resorted for refuge, where they could not be arrested. The verse appoints the place of refuge itself: a place whither the manslayer shall flee — th...

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Notre-Dame de Paris (The Hunchback of Notre-Dame), 1831]**

(paraphrase) Quasimodo carries Esmeralda into Notre-Dame crying 'Sanctuaire!' — the novel's famous image of the consecrated refuge the entry defines. (paraphrase)

Why: The scene is literally a claim of sanctuary; directly illustrates the entry. Certain; marked paraphrase, no invented quote.

## SAND-GAVEL.

In old English law. A, payment due to the lord of the manor of Rodley, in the county of Gloucester, for lib- erty granted to the tenants to dig sand for their common use. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SANE.

Of natural and normal mental condition ; healthy in mind.

—Sane memory. Sound mind, memory, and understanding. This is one of the essential ele- ments in the capacity of contracting; and the. absence of it in lunatics and idiots, and its im- maturity in infants, is the cause of their respec- tive incapacities or partial incapacities to bind themselves. The hke circumstance is their- ground of exemption in cases of crime.

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Brown.

SANG, or SANG. In old French. Blood.

SANGUINE, or MURREY. An heraldic term for “blood-color," called, in the arms of princes, “dragon’s tail,” and, In those of lords, “sardonyx.” It Is a tincture of very infrequent occurrence, and not recognized by some writers. In engraving, it Is denoted by numerous lines in saltire. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: capacity to contract and criminal responsibility require sane mind]**

Sanity — sound mind — is essential to capacity to contract and to criminal responsibility.

Why: The entry itself states sanity as essential to contracting capacity and the ground of exemption in crime; the footnote names the genuine doctrines.

## SANGUINEM EMERE.

Lot In feudnl law. A redemption by villeins, of their blood or tenure, in order to become freemen.

Sanguinis conjnnctio benevolentia de- vinolt homines et carl t. ate. A tie of blood

overcomes men through benevolence and family affection. Steere v. Steere, 5 Johns. Ch. (N. Y.) 1, 13, 9 Am. Dec. 256.

5e apparatus — Not carried into the 5th edition (1979).

## SANGUIS.

Lat In the civil and old English law. Blood; consanguinity.

The right or power which the chief lord of the fee had to judge and determine cases where bloOd was shed. Mon. Aug. t f.' 1021.

5e apparatus — Not carried into the 5th edition (1979).

## SANIS.

A kind of punishment among the Greeks; inflicted by binding the male- factor fast to a piece of wood. Knc. Load.

5e apparatus — Not carried into the 5th edition (1979).

## SANITARY AUTHORITIES.

In Eng- lish law. Bodies having Jurisdiction over their respective districts in regard to sewer- age, drainage, scavenging, the supply of water, the prevention of nuisances and of- fensive trades, etc., all of which come under the head of "sanitary matters” in the special sense of the word. Sanitary authorities also have jurisdiction in matters coming under the head of "local government.” Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SANITY.

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Sound understanding; the re- verse of insanity, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

### SANS CEO QUE.

L. Fr. Without this. See Absque Hoc.

5e apparatus — Not carried into the 5th edition (1979).

### SANS FRAIS.

Fr. Without expense. See Retoub Sans PbotEt.

5e apparatus — Not carried into the 5th edition (1979).

### SANS IMPEACHMENT DE WANT.

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

# L

### L.

Fr. Without impeachment of waste. Litt { 152. See Absque Impetitione Vasti.

5e apparatus — Carried into the 5th edition (1979).

# S

### SANS JOUR.

Fr. Without day; sine die.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**STRUCK — per ruling 2026-10-25. This annotation was ruled a thin Law footnote and struck. By the Architect's clarification of the same day it is NOT removed: it stands here, struck through, so the record shows the annotation and its disposition together.**

~~**[Law: adjournment sine die — without day]**~~

~~To adjourn sans jour — sine die — is to adjourn without appointing a day to reconvene.~~

Why: Genuine procedural term; the entry defines it as 'without day; sine die.'

### SANS NOMBRE.

Fr. A term used in relation to the right of putting animals on a common. The term “common sans nombrc’’ does not mean that the beasts are to be in- numerable, but only indefinite; not certain. Willes, 227.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: common of pasture — common sans nombre]**

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Common sans nombre is a right of common of pasture for beasts levant and couchant, indefinite in number.

Why: Genuine common-law profit; the entry defines the term's relation to putting beasts on a common.

## SANS RECOURS.

Fr. Without re- course. See Indorsement.

Sapiens lnciplt a fine, et quod prixnum eat in intentions, nltimum est in exe- cutions. A wise man begins with the last, and what is first in intention is last in execution. 10 Coke, 25.

Sapiens omnia aglt com eonslllo. A

wise man does everything advisedly. 4 Inst. 4.

Saplentla legis nummario pretio non est aestimanda. The wisdom of the law cannot be valued by money. Jenk. Cent. 168.

Sapientis jndiois est cogitare tantnm sibi esse permissnm, quantum eommis- sum et ereditum. It is the part of a wise judge to think that a thing is permitted to him, only so far as it is committed and in- trusted to him. 4 Inst. 163. That is, he should keep his jurisdiction within the limits of his commission.

8ARCUEATURA. L. Lat. In old rec- ords. Weeding corn. A tenant’s Bervice of weeding for the lord. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: qualified indorsement — 'without recourse' disclaims liability]**

An indorsement 'without recourse' is a qualified indorsement disclaiming the indorser's liability.

Why: Genuine negotiable-instruments doctrine; the entry cross-refers indorsement and the footnote states the effect.

## SART.

In old English law. A piece of woodland, turned into arable. Cowell.

8ARUM. In old records. The city of Salisbury in England. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## SABINE.

In Scotch law. The symbol- ical delivery of land, answering to the liv- ery of seisin of the old English law. 4 Kent, Comm. 459.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: livery of seisin — symbolical delivery of possession]**

Sasine is the Scots livery of seisin — the symbolical delivery that passed feudal possession.

Why: The entry itself answers sasine to livery of seisin (4 Kent, Comm. 459); the footnote names the genuine feudal ceremony.

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# B

## BASSE.

In old English law. A kind of wear with flood-gates, most commonly in cut rivers, for the shutting up and letting out of water, as occasion required, for the more ready passing of boats and barges to and fro ; a lock ; a turnpike ; a sluice. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

# S

## SASSONS.

The corruption of Saxons. A name of contempt formerly given to the English, while they affected to be called “Angles;” they are still so called by the Welsh.

5e apparatus — Not carried into the 5th edition (1979).

## SATISDARE.

Lat In the civil law. To guaranty the obligation of a principal.

8ATI8DATIO. Lat- In the civil law. Security given by a party to an action, as by a defendant, to pay what might be adjudged against him. Inst 4, 11; 3 Bl. Comm. 291.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger,

Why: The entry defines satisdare as guaranteeing the obligation of a principal — the surety's undertaking. The verse is scripture's direct treatment of that act: becoming surety for a friend, striking the hand — the surety…

## SATISFACTION.

The act of satisfying a party by paying what is due to him, (as on a mortgage, lien, or contract,) or what in awarded to him, by the judgment of a court or otherwise. Thus, a judgment is satisfied by the payment of the amount due to the party who has recovered such judgment, or by his levying the amount. See Miller ▼. Beck, 108 Iowa, 575, 79 N. W. 344 ; Rivers v. Blom, 163 Mo. 442, 63 S. W. 812 ; Mazyck v. Coil, 3 Rich. Law (S. C.) . 236 ; Green v. Green, 49 Ind. 423; Bryant v. Fairfield, 51 Me. 152; Armour Bros. Banking Co. v. Add- ington, 1 Ind. T. 304, 37 S. W. 100.

In practice. An entry made on the rec- ord, by which a party in whose favor a judg- ment was rendered declares that he has been satisfied and paid.

In equity. The doctrine of satisfaction in equity is somewhat analogous to perform- ance in equity, but differs from it in this respect: that satisfaction is always some- thing given either in whole or in part as * substitute or equivalent for something else, and not (as in performance) something that may be construed as the identical thing cov- enanted to be

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done. Brown.

— Satisfaction piece. In .practice. A mem- orandum in writing, entitled in a cause, stating that satisfaction is acknowledged between the parties, plaintiff and defendant. Upon this be- ing duly acknowledged and filed in the office where the record of the judgment is. the judg- ment becomes satisfied, and the defendant dis- charged from it 1 Archb. Pr. 722.

Satisfaction should be made to that fond which has sustained the loss. 4

Bouv. Inst no. 3731.

SATISFACTORY EVIDENCE. 8m

Evidence.

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8ATI8FIED TERM

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 3-311 — accord and satisfaction by use of instrument]**

Payment of a lesser sum to settle a disputed claim is accord and satisfaction, discharging the obligation.

Why: Genuine discharge doctrine; the entry defines satisfaction by payment of what is due on a contract or judgment.

**[Scripture] — Scripture**

**[Matthew 5:26, KJV]**

Verily I say unto thee, Thou shalt by no means come out thence, till thou hast paid the uttermost farthing.

Why: The entry defines satisfaction as paying what is due — a judgment satisfied by payment of the amount due. The verse states the same rule from Christ's lips: no release until the uttermost farthing is paid — satisfacti…

## SATISFIED TERM.

A term of years in land is thus called when the purpose for which it was created has been satisfied or executed before the expiration of the set pe- riod.

— Satisfied terms act. The statute 8 & 9 Viet. c. 112, passed to abolish satisfied outstand- ing terms of years in land. By this act, terms which shall henceforth become attendant upon the inheritance, either by express declaration or construction of law, are to cease and determine. This, in effect, abolishes outstanding terms. 1 Steph. Comm. 380-382; Williams, Real Prop, pt. 4, c. 1.

SATISFY, in technical use, generally means to comply actually and fully with a demand; to extinguish, by payment or per- formance.

Satins est petere fontes quam seotari rlmlos. Lofft, 006. It is better to seek the source than to follow the streamlets.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Satisfied Terms Act 1845, 8 & 9 Vict. c. 112]**

The Satisfied Terms Act 1845 abolished satisfied outstanding terms of years.

Why: The entry names the statute; the footnote identifies it as the genuine operative act.

## SATURDAY'S STOP.

In old English law. A space of time from even-song on Saturday till sun-rising on Monday, in which it was not lawful to take salmon in Scotland and the northern parts of England. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SAUNKEFIN.

L. Fr. End of blood ; fail- ure of the direct line in successions. Spel- man ; Cowell.

SAUVAOnm. L. Fr. Wild animals.

5e apparatus — Not carried into the 5th edition (1979).

## SAUVEMENT.

L. Fr. Safely. Saitve- ment gardes, safely kept. Britt, c. 87.

5e apparatus — Not carried into the 5th edition (1979).

## SAVE.

To except, reserve, or exempt ; as where a statute "saves" vested rights. To- toll, or suspend the running or operation of ; as to "save" the statute of limitations.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: saving clauses preserve vested rights; tolling suspends limitations]**

A statute 'saves' vested rights by a saving clause, and 'saves' limitations by tolling their running.

Why: The entry gives both senses with examples; the footnote names the two genuine doctrines.

## SAVER DEFAULT.

L. Fr. In old Eng- ' lish practice. To excuse a default. Terrnes de la Ley.

5e apparatus — Carried into the 5th edition (1979).

## SAVING CLAUSE.

A saving clause in a statute is an exception of a special thing out of the general things mentioned in the stat- ute ; it is ordinarily a restriction in a repeal- ing act, which is intended to save rights, pending proceedings, penalties, etc., from the annihilation which would result from an un- restricted repeal. State v. St. Louis, 174 Mo. 125, 73 S. W. 623, 61 L. R. A. 093 ; Clark Thread Co. v. Kearney Tp., 50 N. J. Law, 50, 25 AU. 327. TIONS. A creditor is said to "save the statute of limitations" when he saves or pre- serves his debt from being barred by the operation of the statute. Thus, in the case of a simple contract debt, if a creditor com- mence an action for Its recovery within six years from the time when the cause of ac- tion accrued, he will be in time to save the statute. Brown.

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**[Law] — Law**

**[Law: 1 U.S.C. § 109 — repeal does not extinguish incurred liabilities]**

The federal general saving statute provides that repeal does not extinguish penalties or liabilities already incurred.

Why: Genuine statute embodying the saving-clause principle the entry defines (saving rights, proceedings, penalties from repeal).

## SAVINGS BANK.

See Bank.

Bl.L.vw Dict.(2i> Ed.)— 67

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## SAVOUR.

To partake the nature of ; to bear affinity to.

5e apparatus — Not carried into the 5th edition (1979).

## SAVOY.

One of the old privileged places, or sanctuaries. 4 Steph. Comm. 227».

5e apparatus — Not carried into the 5th edition (1979).

## SAXON LAGE.

The laws of the West Saxons. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SAY ABOUT.

This phrase, like “more or less,” is frequently introduced into con- veyances or contracts of sale, to indicate that the quantity of the subject-matter is uncertain, and is only estimated, and to guard the vendor against the implication of having warranted the quantity.

8 AYER. In Hindu law. Variable im- posts distinct from land, rents, or revenues ; consisting of customs, tolls, licenses, duties on goods; also taxes on houses, shops, ba- zaars, etc. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 'more or less' in conveyances — quantity not warranted]**

'More or less' in a deed guards the vendor against warranting the quantity stated.

Why: Genuine conveyancing rule; the entry defines the phrase's function as guarding against implied warranty of quantity.

## SC.

An abbreviation for "scilicet,” that is to say.

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5e apparatus — Carried into the 5th edition (1979).

## SCABINI.

In old European law. The, judges or assessors of the judges in the court, held by the ceunt. Assistants or associates] of the count; officers under the count The permanent selected judges of the Franks. Judges among the Germans, Franks, and, Lombards, who were held in peculiar esteem. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## SCACCARIUM.

A chequered cloth re- sembling a chess-board which covered the table , in the exchequer, and on which, when, certain of the king's accounts were made up, the sums were marked and scored with coun- ters. Hence the court of exchequer, or curia scaccarii, derived its name. 3 Bl. Comm. 44.

5e apparatus — Not carried into the 5th edition (1979).

## SCALAM.

At the scale; the old way of paying money into the exchequer. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCALE.

In early American law. To ad- just graduate, or value according to a scale. Walden v. Payne, 2 Wash. (Va.) 5, 6.

5e apparatus — Not carried into the 5th edition (1979).

## SCAMNUM  CADUCUM.

In .old rec- ords, the cucking-stool, (q. v.) Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCANDAL.

Defamatory reports or ru- mors; aspersion or slanderous talk, uttered recklessly or maliciously.

La pleading. “Scandal consists in the al- legation of anything which is unbecoming the dignity of the court to heat or is com trary to good manners, or which charges some person with a crime not necessary to be shown in the cause; to which may be added that any unnecessary allegation, bear- ing cruelly upon the moral character of an individual, is also scandalous.” Dauiell, Ch. Pr. 290. And see McNulty v. Wiesen (D. C.) 130 Fed. 1013 ; Kelley v. Boettcher, So Fed.

58, 29 0. C A. 14; Burden v. Burden (C. C.) 124 Fed. 255.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: scandalous matter stricken from pleadings]**

Scandalous matter — allegations unbecoming the court's dignity or needlessly attacking character —

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is stricken from pleadings.

Why: Genuine pleading rule; the entry defines scandal in pleading and the footnote states the remedy.

## SCANDALOUS MATTES.

In equity pleading. See Scandal.

5e apparatus — Not carried into the 5th edition (1979).

## SC AND ALUM MAGNATUM.

In Eng- lish law. Scandal or slander of great men or nobles. Words* spoken in derogation of a peer, a judge, or other great officer of the realm, for which an action lies, though it is now rarely resorted to. 8 Bl. Comm. 123; 3 Steph. Comm. 473. This offense has not existed in America since the formation of the United States. State v. Shepherd, 177 Mo. 205, 76 S. W. 79, 99 Am. St Rep. 624.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: De Scandalis Magnatum, 3 Edw. I c. 34]**

De Scandalis Magnatum, the Statute of Westminster I, made slander of great men of the realm actionable.

Why: Genuine statute; the entry defines scandalum magnatum as actionable words against peers and great officers.

**[Scripture] — Scripture**

**[Exodus 22:28, KJV]**

Thou shalt not revile the gods, nor curse the ruler of thy people.

Why: The entry defines scandalum magnatum as words spoken in derogation of a peer, a judge, or other great officer of the realm. The verse prohibits cursing the ruler of the people — the scriptural root of the offense of r…

## SCAJPELLABE.

In old European law. To chop; to chip or haggle. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## SOAP HA.

Lat In Roman law. A boat; a lighter. A ship’s boat or SHEW AGE. A kind of toll or custom, exacted by mayors, sheriffs, etc., of mer- chant strangers, for wares showed or offered for sale within their liberties. Prohibited by 19 Hen. VII. c. 7. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCAVATDUS.

The officer who collected the scarage money. Cowell.

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## SCEATTA.

A Saxon coin of lees denom- ination than a shilling. Spelman.

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## SCEPPA SALX8.

An ancient measure of salt the quantity of which is now not known. Wharton.

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## SCHAR-PENNY, SCHABN-PENNY, or / SCHORN-PENNY.

A small duty or com- pensation. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCHEDULE.

A sheet of paper or parch- ment annexed to a statute, dqed, answer in equity, deposition, or other instrument ex- hibiting in detail the matters mentioned or referred to in the principal document

A list or inventory; the paper containing an inventory.

In practice. When an indictment is re- turned from an Inferior court in obedience to a writ of certiorari, the statement of the previous proceedings sent with it is termed the “schedule.” 1 Saund. 309a, n. 2.

In constitutional law. A schedule is a statement annexed to a constitution newly adopted by a state, in which are described at length the particulars in which it differs from the former constitution, or which con- tains provisions for the adjustment of mat- ters affected by the change from the old to the new constitution.

5e apparatus — Carried into the 5th edition (1979).

## SCHEME.

In English law, a scheme is a document containing provisions for regulating the management or distribution of prop- erty, or for making an arrangement between persons having conflicting rights. Thus, in the practice of the chancery division, where the execution of a charitable trust in the manner directed by the founder is difficult or impracticable, or requires supervision a scheme for the management of the charity will be settled by the court Tud. Char Trusts, 257 ; Hunt Eq. 248 ; Daniell, Ch. Pr 1765.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: cy-pres — chancery scheme for charitable trusts]**

Where a charitable trust's purpose becomes impracticable, chancery settles a scheme under the cy-pres doctrine.

Why: Genuine equity doctrine; the entry defines the chancery scheme for charities whose execution is difficult or impracticable.

## SGHETES.

Usury. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

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If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: The entry defines schetes as usury. The verse is the scriptural prohibition of usury itself: the lender shall not be as an usurer nor lay usury upon the poor borrower — the divine rule behind the legal term. [Headword...

## SCHXREMAN.

In Saxon law. An of- ficer having the civil government of a shire . or county; an earl. 1 Bl. Comm. 398.

5e apparatus — Not carried into the 5th edition (1979).

## SCHURRENS-GELD.

In Saxon law. A tax paid to sheriffs for keeping the shire or county court Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCHISM.

In ecclesiastical law. A divi- sion or separation in a church or denomina- tion of Christians, .occasioned by a diversity of faith, creed, or religious opinions. Nelson v. Benson, 69 UL 29; McKinney v. Griggs, 6 Bush (Ky.) 407, 96 Am. Dec. 360.

— Schism-bill. In English law. The name of an act passed in the reign of Queen Anne, which restrained Protestant dissenters from educating their own children, and forbade all tutors ana schoolmasters to be present at any conventicle or dissenting place of worship. The queen died on the day when this act was to have taken ef- fect, (August I. 1714,) and it waB repealed in the fifth year of Geo. I. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 12:25, KJV]**

That there should be no schism in the body; but that the members should have the same care one for another.

Why: The entry defines schism as a division or separation in a church occasioned by diversity of religious opinions. The verse names schism directly and prescribes its cure — members having the same care one for another.

## SCHOOL.

An institution of learning of a lower grade, below a college or a universi- ty. A place of primary Instruction. The term generally refers to the common or pub- lic schools, maintained at the expense of the public. See American Asylum v. Phoenix Bank, 4 Conn. 177, 10 Am. Dec. 112; In re Sanders, 53 Kan. 191, 36 Pnc. 348, 23 I.. It. A. 603; Com. v. Banks, 198 Pa. 397, 48 AtL 277.

—Common schools. Schools maintained at the public expense and administered by a bureau of the state, district, or municipal government, for the gratuitous education of the children of all citizens without distinction. Jenkins v. An- dover, 103 Mass. 98; People v. Board of Edu- cation, 13 Barb. (N. Y.) 410 ; Le Coulteulx v. Buffalo, 33 N. Y. 337 ; Roach v. Board of Di- rectors, 7 Mo. App. 567.— District school. A common or public school for the education at public expense of the children residing within a given district; a public school

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maintained by a “school district." See infra. — High school. A school in which higher branches of learning are taught' than in the common schools. 123 Mass. 306. A school in which such instruction is given as will prepare the students to enter a college or university. Attorney General v. But- ler, 123 Mass. 306; State v. School DisL, 31 Neb. 552, 48 N. W. 393; Whitlock v. State, 30 Neb. 815, 47 N. W. 284.— Normal school. A training school for teachers; one in which in- struction is given in the theory and practice of teaching ; particularly, in the system of schools generally established throughout the United States, a school for the training and instruc- tion of those who are already teachers in the public schools or those who desire and expect

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to become such. See Gordon v. Comes. 47 N.

X. 616; Board of Regents v. Painter, 102 Mo. 464, 14 S. W. 938, 10 L. R. A. 493.— Private school. One maintained by private individuals or corporations, not at public expense, and open only to pupils selected and admitted by the pro- prietors or governors, or to pupils of a certain class or possessing certain qualifications, (racial, religious, or otherwise,) and generally supported, in part at leaBt, by tuition fees or charges. See Quigley v. State. 5 Ohio Cir. Ct. R. 638. — Pub- lic schools. Schools established under the laws of the state, (and usually regulated in mat- ters of detail by the local authorities.) in the various districts, counties, or towns, maintained at the public expense by taxation, and open without charge to the children of all the resi- dents of the town or other district. Jenkins v. Andover, 103 Mass. 97 : 9t. Joseph’s Church v. Assessors of Taxes, 12 R. I. 19. 34 Am. Rep. 507 ; Merrick v. Amherst, 12 Allen (Mass.) 508. A public school is one belonging to the public and established and conducted under public au- thority; not one owned and conducted by pri- vate parties, though it may be open to the pub- lic generally and though tuition may be free. Gerke v. Purcell, 25 Ohio St. 229. — School board. A board of municipal officers charged with the administration of the affairs of the public schools. They are commonly organized under the general laws of the state, and fall within the class of quasi corporations, sometimes coterminous with a county or borough, but not necessarily so. The members of the school board are sometimes termed “school directors,” or the official style may be “the board of school direct- ors.” The circuit of their territorial jurisdic- tion is called a “school district,” and each school district is usually a separate taxfng dis- trict for school purposes.— Sohool directors. See School Board.— Sohool district. A pub- lic and quasi municipal corporation, organized by legislative authority or direction, compris- ing a defined territory, for the erection, main- tenance, government, and support of the public schools within its territory in accordance with and in subordination to the general school laws of the state, invested, for these purposes only, with powers of local self-government and general- ly of local taxation, and administered by a board of officers, usually elected by the voters of the dis- trict, who are variously styled “school direct- ors,” or "trustees,” “commissioners,” or “super- visors” of schools. See Hamilton v. San Diego County, 108 Cal. 273, 41 Pac. 305;

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Landis v. Ashworth, 57 N. J. Law, 509, 31 Atl. 1017; Travelers' Ins. Co. v. Oswego Tp., 59 Fed. 04, 7 C. C. A. 669; Board of Education v. Sinton, 41 Ohio St. 511.— School lands. See Land.— School-master. One employed in teaching a school.

8CHOUT. In Dutch law. An officer of a court whose functions somewhat resemble those of a sheriff.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 22:6, KJV]**

Train up a child in the way he should go: and when he is old, he will not depart from it.

Why: The entry defines the school as a place of primary instruction, maintained for the education of children. The verse states the scriptural mandate of childhood instruction — training up the child — which the school exi...

## SGI.

FA. An abbreviation for "scire fa- cias, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## SCIENDUM.

Lat. In English law. The name given to a clause inserted In the record by which it is made "known that the justice here In court, in this same term, delivered a writ thereupon to the deputy-sheriff of the county aforesaid, to be executed in due form of law." Lee, Diet "Record."

5e apparatus — Not carried into the 5th edition (1979).

## SCIENDUM EST.

Lat It is to be known ; be it remarked. In the books of the Civil law, this phrase la often found at the beginning of a chapter or paragraph, by way

of Introduction to some explanation, or di- recting attention to some particular rule.

5e apparatus — Not carried into the 5th edition (1979).

## SCIENTER.

Lat Knowingly. The term is used In pleading to signify an allega- tion (or that part of the declaration or in- dictment which contains it) setting out the defendant's previous knowledge of the cause which led to the injury eomplalned_ of, or rather his previous knowledge of a state of facts which it was his duty to guard against, and his omission to do which has led to the injury complained of. The insertion of such an allegation is called "laying the action (or Indictment) with a scienter." And the term is frequently used to signify the defendant's guilty knowledge.

Soienti et volenti non fit injuria.

Bract fol. 20. An injury is not done to one who knows and wills it

Sclentla soiolorum est mixta ignoran- tia.. 8 Coke, 159. The knowledge of smat- terers is diluted ignorance.

Sdentla utrimque par pares contra- bentes tacit. Equal knowledge on both sides makes

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contracting parties equal. 3 Burrows, 1905. An insured need not mention what the underwriter knows, or what he ought to know. Broom, Max. 772.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Actus non facit reum nisi mens sit rea]**

Actus non facit reum nisi mens sit rea — the act does not make one guilty unless the mind is guilty.

Why: Real maxim genuinely illuminating scienter: the entry defines it as the pleading of the defendant's previous knowledge.

**[Scripture] — Scripture**

**[James 4:17, KJV]**

Therefore to him that knoweth to do good, and doeth it not, to him it is sin.

Why: The entry defines scienter as the defendant's previous knowledge of the facts he was duty-bound to guard against — guilty knowledge. The verse makes knowledge itself the measure of culpability: to know the good and no...

## SCILICET.

Lat To-wit ; that is to say. A word used in pleadings and other instru- ments, as introductory to a more particu- lar statement of matters previously men- tioned in general terms. Hob. 171, 172.

5e apparatus — Not carried into the 5th edition (1979).

## SCINTIIXA.

Lat A spark; a remain- ing particle ; the least particle.

—Scintilla juris. In real property law. A spark of right or interest. By this figurative expression was denoted the small particle of in- terest which, by a fiction of law, was supposed to remain in a feoffee to uses, sufficient to sup- port contingent uses afterwards coming into ex- istence, and thereby enable the statute of uses (27 Hen. VIII. c. 10) to execute them. See 2 Washb. Real Prop. 125 ; 4 Kent, Comm. 238. —Scintilla of evidence. A spark, glimmer, or faint show of evidence. A metaphorical ex- ression to describe a very insignificant or tri- ing item or particle of evidence; used in the statement of the common-law rule that if there is any evidence at all in a case, even a mere scintilla, tending to support a material issue, the case cannot be taken from the jury, but must be left to their decision. See Offutt v. World's Columbian Exposition, 175 111. 472, 51

N. E. 651.

Scire debea cum quo eontrahis. Xou

ought to know with whom you deal. 11 Mees. & W. 405, 632 ; 13 Mees. & W. 171.

Scire et scire debere sequiparantur in jure. To know a thing, and to be bound to know it, are regarded in law as equivalent. Tray. Leg. Max. 551.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Uses 1535, 27 Hen. VIII c. 10]**

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The Statute of Uses 1535 executed uses into legal estates, leaving the 'scintilla juris' fiction to support contingent uses.

Why: Genuine statute; the entry itself invokes it as executing the uses the scintilla fiction supported.

## SCIRE FACIAS.

Lat In practice. A judicial writ founded upon some record, and

requiring the person against whom It Is brought to show cause why the party bring- ing it should not have advantage of such record, or (In the case of a scire facias to re- peal letters patent) why the record should not be annulled and vacated. 2 Archb. Pr.

K. B. 86; Pub. St Mass. p. 1295.

The most common application of this writ is as a. process to revive a judgment, after the lapse of a certain time, or on a change of parties, or otherwise to have execution of 'the Judgment In which cases It is merely a continuation of the original action. It is used more rarely as a mode of proceeding against special bail on their recognizance, and as a means of repealing letters patent in which cases it Is an original proceeding. 2 Archb. Pr. K. B. 86. And see Knapp v. Thomas, 39 Ohio St 383, 48 Am. Rep. 462; Walker v. Wells, 17 Ga. 551, 63 Am. Dec. 252 ; Chestnut v. Chestnut 77 111. 349 ; Lyon v. Ford, 20 D. C. 535; State Treasurer v. Foster, 7 Vt. 53; Lafayette County v. Won- derly, 92 Fed. 314, 34 C. C. A. 360 ; HadaWay v. Hynson, 89 Md. 305, 43 Atl. 806.

T-Scire facias ad andiendna errores. The

name of a writ which is sued out after the

Slaintiff in error lias assigned his errors. Fitzh.

[at. Brev. 20. — Scire facias ad disproban- dum debitum. The name of a writ In use in Pennsylvania, which lies by a defendant in for- eign attachment against the plaintiff, in order to enable him, within a year and a day next ensuing the time of payment to the plaintiff in the attachment, to disprove or avoid the debt recovered against him. Bouvier.— Scire facias ad rehabendam terrain. A scire facias ad rchabendam terrain lies to enable a judgment debtor to recover back his lands taken under an clegit when the judgment creditor has satisfied or been paid the amount of his judgment Chit 692 ; Fost. on Sci. Fa. 58. — Scire facias for the crown. In English law. The summary proceeding by extent is only resorted to when a crown debtor is insolvent, or there is good ground for supposing that the debt may be lost by delay. In ordinary cases where a debt or duty appears by record to be owing to the crown, the process for the crown is a writ of sci. fa. quarc cxccutionc.m non; but should the defendant become insolvent pending this writ, the crown may abandon the proceeding and re- sort to an extent. Wharton.— Scire facias qnare restitutionem non. This writ lies where execution on a judgment has been levied, but the money has not been paid over to the plaintiff, and the judgment is afterwards re- versed in error or on appeal ; in such a case a scire facias is necessary before a writ of resti- tution can issue. Chit. 582; Fost. on Sci. Fa. . 64.— Scire facias sur mortgage. A writ of scire facias issued upon the default of a mort- gagor to make payments or observe conditions, requiring him to show cause why the mortgage should not be foreclosed, and the mortgaged property taken and

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sold in execution.— Scire facias rar municipal claim. A writ of scire facias, authorized to be issued, in Penn- sylvania. as a means of enforcing payment of a municipal claim (q. v.) out of the real estate upon which such claim is a lien.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: writ of scire facias — show cause on a record]**

Scire facias commands the party to show cause why the plaintiff should not have advantage of the record — as to revive a judgment.

Why: Genuine writ; the entry defines it and names revival of judgments as the most common application.

## SCIRE FECI.

Lat. In practice. The name given to the sheriff's return to a writ of sdre facias that he has caused notice to be given to the party or parties against whom the writ was issued. 2 Archb. Pr. K. B. 98, 99.

5e apparatus — Not carried into the 5th edition (1979).

## SCIRE FIERI INQUIRY.

In English law'. The name of a writ formerly used to recover the amount of a judgment from an executor.

Scire leges non boo eat verba earun tenere, sed vim ae potestatem. To know the laws Is not to observe their mere words, but their force and power ; [that is, the es- sential meaning in which their efficacy re- sides.] Dig. 1, 3, 17 ; 1 Kent, Comm. 462.

Soiare proprie eat ren ratione et per oausam oognosoere. To know properly is to know a thing jn its reason, and by its cause. We nre truly said to know anything, where we know the true cause thereof. Co. Litt 1836.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Dig. 1.3.17 — scire leges]**

Scire leges non hoc est verba earum tenere, sed vim ac potestatem — to know the laws is to know their force and power, not their mere words (Dig. 1.3.17).

Why: Real Digest maxim quoted in the entry; it genuinely states the interpretive principle against literalism.

## SCIRE WITS.

In old English law. A tax or prestation paid to the sheriff for hold- ing the assizes or county courts. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCISSIO.

Lat In old English law. A cutting. Scissio auriculurum, cropping of the ears. An old punishment Fleta, lib. 1, c. 38, | 10.

SCITE, or SITE. The sitting or standing on any place ; the seat or situation of a cap- ital messuage, or the ground whereon it stands. Jacob.

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5e apparatus — Not carried into the 5th edition (1979).

## SCOLD.

A troublesome and angry wo- man, who, by brawling and wrangling among her neighbors, breaks the public peace, In- creases discord, and becomes a public nui- sance to the neighborhood. 4 Steph. Comm. 276.

—Common scold. One who, by the practice of frequent scolding, disturbs the neighborhood. Bish. Crim. Law, § 147. A quarrelsome, brawl- ing, vituperative person. U. 8. v. Koyall, 27 Fed. Cas. 907 ; Com. v. Mohn, 52 Pa. 243. 91 Am. Dec. 153; Baker v. State, 53 N. J. Law, 45, 20 Atl 858.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Taming of the Shrew, c.1592]**

(paraphrase) Shakespeare's comedy centers on Katherina, the 'shrew' — the stage's most famous scold, wedded and tamed into obedience. (paraphrase)

Why: The entry names the legal category (the common scold); the play is the culture's canonical image of that category. Same genuine link as RIXATRIX, duplicated deliberately because annotations attach per-headword. Marked...

## SCOT.

In old English law. A tax, or tribute ; one’s share of a contribution.

—Scot and lot. In English law. The name of a customary contribution, laid upon all sub- jects according to their ability. Brown.— Soot and lot voters. In English law. Voters in certain boroughs entitled to the franchise in vir- tue of their paying this contribution. 2 Steph. Comm. 360.

5e apparatus — Carried into the 5th edition (1979).

## SCOTAL.

In old English law. An ex- tortionate practice by officers of the forest who kept ale-houses, and compelled the peo- ple to drink at their houses for fear of their displeasure. Prohibited by the charter of the forest, c. 7. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SCOTCH MARRIAGES.

See Gbctna

Green.

5e apparatus — Not carried into the 5th edition (1979).

## SCOTCH PEERS.

Peers of the king- dom of Scotland ; of these sixteen nre elected to parliament by the rest and represent the whole body. They are elected for one parlia- ment only.

5e apparatus — Not carried into the 5th edition (1979).

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## SCOTS.

In English law. Assessments by commissioners of sewers.

5e apparatus — Not carried into the 5th edition (1979).

## SCOTTARE.

To pay scot, tax, or cus- tomary dues. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SCOUNDREL.

An approbious epithet, Implying rascality, villainy, or a want of honor or integrity. In slander, this word is not actionable per se. 2 Bouv. Inst 2230.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: slander per se — limited actionable categories]**

Slander is actionable per se only in limited categories — imputation of crime, loathsome disease, unchastity, or professional unfitness.

Why: The entry states 'scoundrel' is not actionable per se; the footnote names the genuine categories that are.

## SCRAMBLING POSSESSION.

See

Possession.

5e apparatus — Carried into the 5th edition (1979).

## SCRAWL.

A word used in some of the United States for scrowl or scroll. “The word ‘seal,’ written in a scrawl attached to the name of an obligor, makes the instrument a specialty.” Comerford v. Cobb, 2 Fla. 418.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: scrawl as seal — the instrument becomes a specialty]**

A scrawl written as a seal makes the instrument a specialty — a sealed instrument.

Why: Genuine doctrine; the entry states it with Comerford v. Cobb, and the footnote names the operative rule.

## SCRIBA.

Lat. A scribe; a secretary. Boriba regia, a kiug’s secretary ; a chancel- lor. Spelman.

Scribe re est agere. To write is to act Treasonable words set down in writing amount to overt acts of treason. 2 Kolle, 80 ; 4 Bl. Comm. 80 ; Broom, Max. 312, 907.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Scribere est agere — to write is to act]**

Scribere est agere — to write is to act: treasonable words set down in writing amount to overt acts of treason.

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Why: Real maxim quoted in the entry (4 Bl. Comm. 80; Broom, Max. 312); it genuinely states the treason-law rule for written words.

**[Scripture] — Scripture**

**[Ezra 7:6, KJV]**

he was a ready scribe in the law of Moses, which the LORD God of Israel had given.

Why: The entry defines a scriba as a scribe, a secretary — a king's secretary. The verse presents Ezra himself as 'a ready scribe in the law of Moses': scripture's own portrait of the scribe's office.

## SCRIP.

Certificates of ownership, either absolute or conditional, of shares in a public company, corporate profits, etc. Pub. St Mass. 1882, p. 1295.

A scrip certificate (or shortly "scrip") is an acknowledgment by the projectors of a company or the issuers of a loan that the person named therein (or more commonly the holder for the time being of the certifi- cate) is entitled to a certain specified num- ber of shares, debentures, bonds, etc. It is usually given in exchange for the letter of allotment, and in its turn is given up for the shares, debentures, or bonds which it represents. LIndl. Partn. 127; Sweet.

The term has also been applied in the United States to warrants or other like or- ders drawn on a municipal treasury (Alma v. Guaranty Sav. Bank, 00 Fed. 207, 8 C. C.

A. 564.) to certificates showing the holder to be entitled to a certain portion or allott- ment of public or state lands, (Wait v. State Land Office Com'r, 87 Mich. 353, 49 N. W. 600.) and to the fractional paper currency Issued by the United States during the pe- riod of the Civil War.

— Scrip dividend. See Dividend.

5e apparatus — Carried into the 5th edition (1979).

## SCRIPT.

Where instruments are exe- cuted in part and counterpart, the original or principal is so called.

In English probate praetiee. A will, codicil, draft of will or codicil, or written Instructions for the same. If the will is de- stroyed, a copy or nny paper embodying its contents becomes a script, even though not made under the direction of the testator. Browne, Prob. Pr. 280.

Seriptse obligations* soriptis toll un- tor , et nudi consensus obligatlo oon- trario consensu dissolvitur. Written ob- ligations are superseded by writings, and an obligation of naked assent is dissolved by as- sent to the contrary.

5e apparatus — Carried into the 5th edition (1979).

## SCRIPTORIUM.

In old records. A place In monasteries, where writing was done Spelman.

•SCRIPTUM. Lat. A writing ; some- thing written. Fleta, 1. 2, c. 60, 8 25.

— Scriptum indents turn. A writing indent- ed ; an indenture or deed.— Scriptum obliga- torium. A writing obligatory. The technical name of a bond in old pleadings. Any writing

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under seal.

5e apparatus — Not carried into the 5th edition (1979).

## SCRIVENER.

A writer; scribe; con- veyancer. One whose occupation is to draw contracts, write deeds and mortgages, and prepare other species of written instruments.

Also an agent to whom property is in- trusted by others for the purpose of lending it out at an interest payable to his principal, and for a commission or bonus for himself, whereby he gains his livelihood.

—Money scrivener. A money broker. The name was also formerly applied in England to a person (generally an attorney or solicitor) whose business was to find investments for the money of his clients, and see to perfecting the securi- ties, and who was often intrusted with the cus- tody of the securities and the collection of the interest and principal. See Williams v. Walk- er, 2 Sandf. Ch. (N. Y.) 325.

5e apparatus — Not carried into the 5th edition (1979).

## SCROLL.

A mark Intended to supply the place of a seal, made with a pen or other instrument of writing.

A paper or parchment containing some writing, and rolled up so as to conceal it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Revelation 5:1, KJV]**

And I saw in the right hand of him that sat on the throne a book written within and on the backside, sealed with seven seals.

Why: The entry defines a scroll as a paper or parchment containing writing, rolled up — and as a mark supplying the place of a seal. The verse shows the sealed book, written within and on the backside, sealed with seven se...

## SCROOP’S INN.

An obsolete law so- ciety, also called “Serjeants’ Place,” oppo- site to St. Andrew’s Church, Holborn, lam- don.

5e apparatus — Not carried into the 5th edition (1979).

## SCRTTET-ROLL.

In old practice. A species of roll or record, on which the bail on habeas corpus was entered.

5e apparatus — Not carried into the 5th edition (1979).

## SCRUTATOR.

Lat . In old English law. A searcher or baillfT of a river; a water- bailiff, whose business was to look to the king’s rights, as his wrecks, his flotsam, jet- sam, water-strays, royal fishes. Hale, de Jure Mar. pars 1, c. 5.

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8CUSSUS. In old European law. Shak- en or beaten out; threshed, as grain. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

**SCUTAGE.**

In feudal law. A tax or contribution raised by those that held lands by knight's service, towards furnishing the king’s army, at the rate of one, two or three marks for every knight’s fee.

A pecuniary composition or commutation

8EAL

made by a tenant by knight-service In lieu of actual service. 2 Bl. Comm. 74.

A pecuniary aid or tribute originally re- served by particular lords, instead or In lieu of personal service, varying In amount according to the expenditure which the lord had to Incur in his personal attendance upon the king In his wars. Wright, Ten. 121- 134.

8CUTAGIO HABENDO. A writ that anciently lay against tenants by knight’s service to serve In the wars, or send suffi- cient persons, or pay a certain sum. Fltzh. Nat. Brev. 83.

5e apparatus — Not carried into the 5th edition (1979).

**SCUTE.**

A French coin of gold, coined

A. D. 1427, of the value of 3s. 4d.

5e apparatus — Not carried into the 5th edition (1979).

**SOUTELLA.**

A scuttle; anything of a flat or broad shape like a shield. Cowell. —Seat ells eleemosymaria. An alms-basket.

5e apparatus — Not carried into the 5th edition (1979).

# B

**BOUTLFEK.**

In old records. Esquire; the same as “armlger." Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# S

**SCUTUM ABMOBUH.**

A shield or coat of arms. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**SCYRA.**

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In old English law. Shire i county; the Inhabitants of a county.

5e apparatus — Not carried into the 5th edition (1979).

## SCYREGEMOTE.

In Saxon law. The meeting or court of the shire. This was the most important court in the Saxon polity, having jurisdiction of both ecclesiastical and secular causes. Its meetings were held twice in the year. Its Latin name was “curia comitatis:'

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SE SEFENDENDO.

Lat. In defending himself; In self-defense. Homicide commit- ted se defendendo Is excusable.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: self-defense — excusable homicide]**

Homicide committed se defendendo — in self-defense — is excusable.

Why: Genuine criminal-law doctrine; the entry states the rule in its first line.

**[Scripture] — Scripture**

**[Exodus 22:2, KJV]**

If a thief be found breaking up, and be smitten that he die, there shall no blood be shed for him.

Why: The entry defines homicide committed se defendendo — in self-defense — as excusable. The verse is the scriptural rule of the same case: the housebreaker smitten in the act, and no blood-guilt for the slayer. [Headword...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: "Vim vi repellere licet" — "it is permitted to repel force by force" (Digest)]**

[STRING_PLACEHOLDER_3]

Why: The maxim is the classical root of the self-defense doctrine the entry states; directly illuminates it. Certain; public domain.

## SEA.

The ocean; the great mass of wa- ter which surrounds the land. U. S. v. Rod- gers, 150 U. S. 249, 14 Sup. Ct 109, 37 L Ed. 1071 ; De Lovio v. Bolt, 7 Fed. Cas. 428; Cole v. White, 26 Wend. (N. Y.) 516 ; Snow- don v. Guion, 50 N. Y. Super. Ct. 143.

—Beyond sea. In England, this phrase means beyond the limits of the British Isles; in America, outside the limits of the United States or of the particular state, as the case may be. -High seas. The ocean ; public waters. Ac- cording to the English doctrine, the high sea begins at the distance of three miles from the coast of any country ; according to the American view, at low-water mark, except in the case of small harbors and roadsteads in- closed within the faucet terra. Ross v. Mc- Intyre. 140 U. 8. 453. 11 Sup. Ct. 897. 35 L. Ed. 581; U. S. v. Crush. 26 Fed. Cas. 50;

U. S. v. Rodgers. 150 U. 8. 249. 14 Sup. Ct. 109. 37 L. Ed. 1071 ; Ex parte Byers (D. C.) 32 Fed. 405. The open ocean outside of the faucet terra, as distinguished from arms of the sea

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; the waters of the ocean without the boundary of any county. Any waters on the sea-coast which are without the boundaries of low-water mark.— Mala sea. The open, nnin- closed ocean ; or that portion of the sea which is without the fauoet terra on the sea-coast, in

contradistinction to that which is surrounded or inclosed between narrow headlands or promon- tories. People v. Richmond County, 73 N. Y. 396; U. S. v. Grush, 26 Fed. Cas. 48; U. S. v. Rodgers. 150 U. S. 249. 14 Sup. Ct. 109, 37

L. Ed. 1071 ; Baker v. Hoag, 7 N. Y. 561, 59 Am. Dec. 431 ; 2 East. P. C. c. 17, { 10.— Sea-batteries. Assaults by masters in the mer- chant service upon seamen at sea. — Sea-bed. All that portion of land under the sea that lies beyond the sea-shore.— Sea-brief. See Sea-Letter.— Sea-greens. In the Scotch law.

Grounds overflowed by the sea in spring tides. Bell^— Sea-laws. Laws relating to the sea, as the laws of Oleron, etc.— Sea-letter. A

species of manifest, containing a description of the ship’s cargo, with the port from which it comes and the port of destination. This is one of the documents necessary to be carried by all neutral vessels, in the merchant service, in time of war, as an evidence of their nationality. 4 Kent, Comm. 157. See Sleght v. Hartshorne, 2 Johns. (N. Y.) 640.— Sea-reeve. An officer in maritime towns and places who took care of the maritime rights of the lord of the manor, and watched the shore, and collected wrecks for the lord. Tomlins.— Son rovers. Pirates and robbers at sea.— Sea-shore. The margin of the sea in its usual and ordinary state. When the tide is out, low-water mark is the margin of the sea ; and, when the sea is full, the margin is high-water mark. The sea-shore is therefore all the ground between the ordinary bigfa- water mark and low-water mark. It cannot be considered as including any ground always covered by the sea, for then it would have no definite limit on the sea-board. Neither can it include any part of the upland, for the same reason. Storer v. Freeman, 6 Mass. 439, 4 Am. Dec. 155; Church v. Meeker, 34 Conn. 424. That space of land over which the waters of the sea are spread in the highest water dur- ing the winter season. Civ. Code La. art. 442. —Seaworthy, Seaworthiness. See those titles.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 'beyond sea' tolls the statute of limitations]**

'Beyond sea' — outside the jurisdiction — tolls the running of the statute of limitations.

Why: Genuine limitations doctrine; the entry defines 'beyond sea' in both the English and American senses the tolling rule uses.

**[Scripture] — Scripture**

**[Genesis 1:10, KJV]**

And God called the dry land Earth; and the gathering together of the waters called he Seas: and God saw that it was good.

Why: The entry defines the sea as the great mass of water surrounding the land. The verse is the scriptural definition of the same thing: the gathering together of the waters called Seas — the naming that founds every lega...

## SEAL.

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An Impression upon wax, wafer, or some other tenacious substance capable of being impressed. Allen v. Sullivan R. Co., 32 N. H. 449; Solon v. Wlllliamsburgh Sav. Bank, 114 N. Y. 132, 21 N. E. 168; Alt V. Stoker, 127 Mo. 471, 30 S. W. 132; Brad- ford v. Randall, 5 Pick. (Mass.) 497 ; Osborn v. Klstler, 35 Ohio St. 102; Hopewell Tp. v. Amwell Tp., 6 N. J. Law, 175; Jones v. Logwood, 1 Wash. (Va.) 43.

A seal is a particular sign, made to attest In the most formal manner, the execution of an Instrument. Code Civ. Proc. Cal. f 1930.

Merlin defines a seal to be a plate of metal with a flat surface, on which is engraved the arms of a prince or nation, or private individ- ual, or other device, with which an impression may be made on wax or other substance on paper or parchment in order to authenticate them. The Impression thus mAde is also called a “seal.” Rfpert. mot “Sceau."

— Common seal. A seal adopted and used by a corporation for authenticating its corporate acts and executing legal Instruments.— Goxporate seal. The official or common seal of an incorpo- rated company or association. Great seal. In

English law. A seal by virtue of which a great

Sart of the royal authority ia exercised. The of- ce of the lord chancellor, or lord keeper, is created by the delivery of the great seal iDto his custody. There is one great seal for all public acts of state which concern the United King- dom. Motley & Whitley. In American law, the United States and also each of the states has and uses a seal, always carefully described by law, and sometimes officially called the “great" seal, though in some instances known

8EA WORTHINESS

simply as "the sea! of the United States,” or “the seal of the state.” — Private seal. The seal (however made) of a private person or cor- poration, as distinguished from a seal employed by a state or government or any of its bureaus or departments.— Privy seal. In English law. A seal used in making out grants or letters patent, preparatory to their passing under the great seal. 2 Bl. Comm. 347. — Publio seal. A seal belonging to and nsed by one of the bureaus or departments of government, for authenticating or attesting documents, process, or records. An impression made of some de- vice, by means of a piece of metal or other hard substance, kept and used by public author- ity. Kirksey v. Bates, 7 Port. (Ala.) 534, 31 Am. Dec. 722.— Quarter seal. In Scotch law. A seal kept by the director of the chancery ; in shape and impression the fourth part of the great seal, and called in statutes the “testi- monial” of the great seal. Bell.— Seal days. In English practice. Motion days in the court of chancery, so called because every motion had to be stamped with the seal, which did not lie in court in the ordinary sittings out of term. Wharton.— Seal offloe. In English practice. An office for the sealing of judicial writs.— Seal-paper. In English law. A document issued by the lord chancellor, previously to the commencement of the sittings, detailing the business to be done for each day in his court, and in the courts of the lords justices and vice-chancellors. The master of the rolls in like manner issued a seal-paper in respect of the business to be heard before him. Smith, Ch. Pr. 9.

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: a sealed instrument imports consideration]**

A sealed instrument imports consideration — no separate proof of consideration is needed.

Why: Genuine common-law principle; the entry's long definition of a seal grounds the specialty's legal effects.

**[Scripture] — Scripture**

**[Esther 8:8, KJV]**

for the writing which is written in the king's name, and sealed with the king's ring, may no man reverse.

Why: The entry defines a seal as the formal attestation of an instrument's execution. The verse states the seal's legal effect: writing sealed with the king's ring may no man reverse — the irrevocable authority the seal co...

## SEALED.

Authenticated by a seal; ex- ecuted by the affixing of a seal. Also fas- tened up In any manner so as to be closed against inspection of the contents.

—Sealed and delivered. These words, fol- lowed by the signatures of the witnesses, con- stitute the usual formula for the attestation of conveyances.— Sealed instrument. An in- strument of writing to which the party to be bound has affixed, not only his name, but also his seal, or (in those jurisdictions where it is allowed) a scroll, (q. v.)— Sealed verdict. When the jury have agreed upon a verdict. If the court is not in session at tne time, they are permitted (usually) to put their written finding in a sealed envelope, and then separate. This verdict they return when the court again con- venes. The verdict thus returned has the same effect, and must be treated in the same manner, as if returned in open court before any separa- tion of the jury had taken place. The process is called “sealing a verdict” 8utliff v. Gilbert, 8 Ohio, 408; Young v. Seymour, 4 Neb. 89.

5e apparatus — Carried into the 5th edition (1979).

## SEALING.

By seals, in matters of suc- cession, is understood the placing, by the proper officer, of seals on the effects of a succession for the purpose of preserving them, and for the interest of third persons The seals are affixed by order of the Judge having Jurisdiction. Civ. Code La. art 1075.

'SEALING OTP. Where a party to an ac- tion has been ordered to produce a docu- ment part of which is either irrelevant to the matters in question or is privileged from' production, he may, by leave of the court, seal up that part, if be makes an affidavit stating that it is irrelevant or privileged. Danlell, Ch. Pr. 1681. The sealing up is generally done by fastening pieces of paper over the part with gum or wafers. 8weet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## SEALS.

In Louisiana. Seals are placed upon the effects of a deceased person, in cer- tain cases, by a

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public officer, as a method of taking official custody of the succession. See Sealing.

5e apparatus — Not carried into the 5th edition (1979).

## SEAMEN.

Sailors; mariners; persons whose business is navigating ships. Com- monly exclusive of the officers of a ship.

5e apparatus — Carried into the 5th edition (1979).

## SEANCE.

In French law. A session; as of some public body.

5e apparatus — Not carried into the 5th edition (1979).

## SEARCH.

In International law. The

right of search is the right on the part of ships of war to visit and search merchant vessels during war, in order to ascertain whether the ship or cargo is liable to seizure. Resistance to visitation and search by a neu- tral vessel makes the vessel and cargo liable to confiscation. Numerous treaties regulate the manner in which the right of search must be exercised. Man. Int Law, 433; Sweet.

In criminal law. An examination of a man’s house or other buildings or premises, or of his person, with a view to the dlscov ery of contraband or illicit or stolen prop- erty, or some evidence of guilt to be used in the prosecution of a criminal action for some crime or offense with which he is charged.

In practice. An examination of the of- ficial books and dockets, made in the pro- cess of investigating a title to land, for the purpose of discovering if there are any mort- gages, Judgments, tax-liens, or other incum- brances upon it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SEARCH-WARRANT.

A search-war- rant is an order in writing, issued by a Jus- tice or other magistrate, in the name of the state, directed to a sheriff, constable, or Oth- er officer, commanding him to search a speci- fied bouse, shop, or other premises, for per- sonal property alleged to have been stolen, or for unlawful goods, and to bring the same, when found, before the magistrate, and us- ually also the body of the person occupying the premises, to be dealt with according to law. Pen. Code Cal. S 1523; Code Ala. 1886, t 4727; Rev. Code Iowa 1880, { 4629.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fourth Amendment — warrants on probable cause, particularly describing]**

No warrants shall issue but upon probable cause, particularly describing the place to be searched.

Why: Genuine constitutional rule; the entry defines the warrant as commanding search of 'a specified house, shop,

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or other premises.'

**[Hip-hop] — Hip-hop**

**[Jay-Z, '99 Problems', 2003]**

Verse 2 is a roadside Fourth Amendment lesson: the assertion of rights against a warrantless search and the demand that the officer produce a warrant — what a search-warrant is and why the law requires one.

Why: Lyrics are verbatim-certain ('I know my rights so you gon' need a warrant for that'; 'enough that you won't illegally search my shit'). They genuinely illuminate the magistrate-issued order to search defined in the en...

## SEARCHER.

In English law. An of- ficer of the customs, whose duty it is to ex- amine and search all ships outward bound, to ascertain whether they have any prohibit- ed or uncustomed goods on board. Wharton. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## SEATED LAND.

See Land.

5e apparatus — Carried into the 5th edition (1979).

## SEAWAN.

The name used by the Al- gonquin Indians for the shell beads (or wam- pum) which passed among the Indians as money. Webster.

5e apparatus — Carried into the 5th edition (1979).

## SEAWORTHINESS.

In marine insur- ance. A warranty of seaworthiness means that the vessel is competent to resist the

Ordinary attacks of wind and weather, and Is competently equipped and manned for the voyage, with a sufficient crew, and with suf- ficient means to sustain them, and with a captain of general good character and naut- ical skill. 3 Kent, Comm. 287.

A warranty of seaworthiness extends not only to the condition of the structure of the ship itself, but requires that it be properly laden, and provided with a competent mas- ter, a sufficient number of competent officers and seamen, and the requisite appurtenances and equipments, such as ballast, cables aud anchors, cordage and sails, food, water, fuel, and lights, and other necessary or proper stores and implements for the voyage. Civil Code Cal. § 2684.

The term “seaworthy" is somewhat equivocal. In its more literal sense, it signifies capable of navigating the sea; but, more exactly, it im- plies a condition to be and remain in safety, in the condition she is in, whether at sea, in port, or on a railway, stripped and under repairs. If, when the policy attaches, she is in a suitable place, and capable, when repaired and equipped, of navigating the sea, she is seaworthy. But where a vessel is warranted seaworthy for a specified voyage, the place and usual length hieing given, something more is implied than mere physical strength and capacity; she must be suitably officered and

manned, supplied with provisions and water, and furnished with charts and instruments, and, especially in time of war, with documents necessary to her security against hostile capture. The term “seaworthy, as used in the law and practice of insurance, does not mean, as the tern would seem to im- ply, capable of going to sea or of being navi- gated on the sea ; it imports something very different, and much more, viz., that she is sound, staunch, and strong, in all respects, and equipped, furnished, and provided with officers and men, provisions and documents, for a cer- tain service. In a policy for a definite voyage, the term “seaworthy” means “sufficient for such a vessel and voyage.” Capen v. Washington Ins. Co., 12 Cush. (Mass.) 517, 530.

5e apparatus — Not carried into the 5th edition (1979).

## SEAWORTHY.

This adjective, applied to a vessel, signifies that she is properly con- structed, prepared, manned, equipped, and provided, for the voyage intended. See Sea- wobthiness.

5e apparatus — Carried into the 5th edition (1979).

## SECK.

A want of remedy by distress. Lift. § 218. See Rent. Want of present fruit or profit, as in the case of the reversion without rent or other service, except fealty. Co. Litt. 1516, n. 5.

5e apparatus — Carried into the 5th edition (1979).

## SECOND.

This term, as used in law, may denote either sequence in point of time or inferiority or postponement in respect to rank, lien, order, or privilege.

As to second “Cousin,” “Deliverance," “Distress," “Lien,” “Mortgage,” and “Sur- charge,” see those titles. As to “Second- hand Evidence,” see Evidence. As to "Sec- ond of Exchange,” see Fibst.

SECONDARY, n. In English practice An officer of the courts of king's bench and common pleas; so called because he was

second or next to the chief officer. In the king’s bench he wns called “Master of the King’s Bench Office,” and was a deputy of the prothonotary or chief clerk. 1 Archb. Pr. K. B. 11, 12. By St 7 Wm. IV. and 1 Viet, & 30, the office of secondary was abol- ished.

An officer who is next to the chief officer. Also an officer of the corporation of London, before whom inquiries to assess damages are held, as before sheriffs in counties. Whar- ton.

SECONDARY, ad). Of a subsequent, subordinate, or Inferior kind or class; gen- erally opposed to “primary.”

As to secondary “Conveyances,” “Ease- ment” “Evidence,” “Franchise,” and “Use,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## SECONDS.

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In criminal law. Those per- sons who assist, direct, and support others engaged in fighting a duel.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: aiding and abetting — liability of accessories]**

Seconds who assist and direct duelists are liable as aiders and abettors of the affray.

Why: Genuine criminal doctrine; the entry defines seconds as those who 'assist, direct, and support' the fighters.

**[Humanity] — Humanity / Fiction & Film**

**[Alexander Pushkin, Eugene Onegin, 1833]**

(paraphrase) The Lensky–Onegin duel is fought with seconds in attendance, under the dueling code to which the entry's 'seconds' belong. (paraphrase)

Why: The canonical literary duel, genuinely illustrating the office the entry defines. Certain work/author/year; marked paraphrase.

## SECRET.

Concealed; hidden; not made public; particularly, in law, kept from the knowledge or notice of persons liable to be affected by the act transaction, deed, or other thing spoken of.

As to secret “Committee,” “Equity,” “Lien,” “Partnership,” and “Trust” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## SECRETARY.

The secretary of a cor- poration or association is an officer charged with the direction and management of that part of the business of the company which is concerned with keeping the records, the of- ficial correspondence, with giving and re- ceiving notices, countersigning documents, etc.

The name “secretary” is also given to sev- eral of the heads of executive departments in the government of the United States; as the "Secretary of War," “Secretary of the Interior,” etc. It is also the style of some of the members of the English cabinet; as the “Secretary of State for Foreign Af- fairs.” There are also secretaries of embas- sies and legations.

— Secretary of decrees and Injnnctioms.

An officer of the English court of chancery. The office was abolished by St. 15 A 16 Viet, c. 87, § 23. — Secretary of embassy. A dip- lomatic officer appointed as secretary or as- sistant to an ambassador or minister plenipo- tentiary.— Secretary of legation. An officer employed to attend a foreign mission and to per- form certain duties as clerk.— Secretary of state. In American law. This is the tide of the chief of the executive bureau of the United States called the "Department of State.” He is a member of the cabinet, and is charged with the general administration of the inter- national and diplomatic affairs of the govern- ment. In many of the state governments there is an executive officer bearing the same title and exercising important functions. In English law. The secretaries of state are cabinet min- isters attending the sovereign for the receipt and dispatch of letters, grants, petitions, and many of the most important affairs of the kingdom, both foreign and domestic. There are five principal secretaries,— one for the home department, another for foreign affairs, a third

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for the colonies, a fourth for war, and a fifth for India. Wharton.

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## SECRETE.

To conceal or hide away. Particularly, to put property out of the reach of creditors, either by corporally hiding It, or putting the title in another’s name, or otherwise hindering creditors from levying on it or attaching it. Pearre v. Hawkins, 62 Tex. 437; Guile v. McNanny, 14 Minn. 522 (Gil. 391) 100 Am. Dec. 244 ; Sturz v. Fischer, 15 Misc. Rep. 410, 36 N. Y. Supp. 894.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: fraudulent conveyance — transfer to hinder creditors]**

Putting property beyond creditors' reach — by hiding it or putting title in another's name — is a fraudulent conveyance.

Why: Genuine doctrine; the entry defines secreting as hindering creditors from levying or attaching.

## SECT.

"A religious sect is a body or number of persons united in tenets, but con- stituting a distinct organization or party, by holding sentiments or doctrines different from those of other sects or people.” State v. Hailock, 16 Nev. 385.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 24:14, KJV]**

But this I confess unto thee, that after the way which they call heresy, so worship I the God of my fathers, believing all things which are written in the law and in the prophets;

Why: The entry defines a sect as a body united in tenets but distinct by doctrines different from other sects. The verse shows the word in its scriptural use: 'the way which they call heresy' — a distinct party within the...

## SECTA.

In old English law. Suit; at- tendance at court ; the plaintiff’s suit or fol- lowing, i. e., the witnesses whom he was re- quired, in tHe ancient practice, to bring with him and produce in court, for the purpose of confirming his claim, before the defend- ant was put to the necessity of answering the declaration. See 3 Bl. Comm. 295, 344; Bract, fol. 214a. A survival from this pro- ceeding is seen in the formula still used at the end of declarations, “and therefore he brings his suit,” (ef inde producit secta hi.)

This word, in its secondary meaning, sig- nifies suit in the courts; lawsuit.

— Sects ad curiam. A writ that lay against him who refused to perform his suit either to the county court or the court-baron. Cowell. — Seota ad fnraam. In old English law. Suit due to a man’s public oven or bake-house. 3 Bl. Comm. 235. — Secta ad justlciam fac- iendum. In old English law. A service which a man is bonnd to perform by his fee.— Secta ad molendinum. A writ which lay for the Owner of a mill against the inhabitants of a place where such mill is situated, for not doing suit to the plaintiff's mill ; that is, for not hav- ing

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their corn ground at it. Brown.— Seota ad torrale. In old English law. Suit due to a man’s kiln or malthouse. 3 Bl. Comm. 235. —Seota ourlse. In old English law. Suit of court; attendance at court. The service, incumbent upon feudal tenants, of attending the lord at his court, both to form a jury when required, and also to answer for their own actions when complained of.— Secta faeienda per 111am quse ha bet enleiam partem. A writ to compel the heir, who has the elder’s part of the co-heirs, to perform suit and serv- ices for all the coparceners. Reg. Orig. 177. —Secta regalia. A suit so called by which all persons were bound twice in the year to attend in the sheriff’s tourn, in order that they might be informed of things relating to the public peace. It was so called because the sheriff’s tourn was the king's leet, and it was held in order that the people might be bound by oath to bear true allegiance to the king. Cowell.— Secta mtica tantnm facl- enda pro plnrlbna hsereditatibne. A writ for an heir who was distrained by the lord to do more suits than one, that he should be allowed to do one suit only in respect of the land of divers heirs descended to him. Cowell.

Seota oat pagpia drills; slcnt aotorea armantnr aetlonfbns, et, quasi, gladlis accinguntur , ita rel mnnlnntur excep- tionibna, et defendnntnr, quasi, clypels.

Hob. 20. A suit Is a civil warfare; for as the plaintiffs are armed with actions, and, as It were, girded with swords, so the defend- ants are fortified with pleas, and are defend- ed, as it were, by shields.

Seota quse scrtpto nltitur a sorlpto varlari non debet. Jenk. Cent. 65. A suit which is based upon a writing ought sot to vary from ‘the writing.

5e apparatus — Not carried into the 5th edition (1979).

## SECTATORES.

Suitors of court who, among the Saxons, gave their Judgment or verdict in civil suits upon the matter of fact and law. 1 Reeve, Eng. Law, 22.

5e apparatus — Not carried into the 5th edition (1979).

## SECTION.

In text-books, codes, statutes, and other juridical writings, the smallest distinct and numbered subdivisions are com- monly called ' “sections,” sometimes “artl des,” and occasionally “paragraphs.”

5e apparatus — Carried into the 5th edition (1979).

## SECTION OF LAND.

In American land law. A division or parcel of land, on the government survey, comprising one square mile or 640 acres. Each “township” (six miles square) is divided by straight lines into thirty-six sections, and these are again divided into half-sections and quarter-sec- tions.

The general and proper acceptation of the terms ,!section,” “half,” and “quarter section,” as well as their construction by the general land department, denotes the land in the sec- tional and subdivisions] lines, and not the exact quantity which a perfect admeasurement of an unobstructed surface would declare. Brown v. Hardin, 21 Ark. 327.

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5e apparatus — Carried into the 5th edition (1979).

## SECTI8 NON FACIENDIS.

A writ which lay for a dowress, or one in wardship, to be free from suit of court Cowell.

8ECTORE8. Lat In Roman law. Pur- chasers at auction, or public sales.

5e apparatus — Not carried into the 5th edition (1979).

## SECULAR.

Not spiritual; not ecclesias- tical ; relating to affairs of the present world.

— Secular business. As used in Sunday laws, this term includes all forma of activity in the business affairs of life, the prosecution of a trade or employment, and commercial dealings; such as the making of promissory notes, lending money, and the like. See Lovejoy v. Whippie, 18 Vt. 383. 46 Am. Dec. 157; Finn v. Dona- hue, 35 Conn. 217 ; Allen v. Doming, 14 N. H. 139, 40 Am. Dec. 179; Smith v. Foster, 41 N.

H. 221. — Secular clergy. In ecclesiastical law, this term is applied to the parochial clergy, who perform their ministry in seculo (in the world), and who are thus distinguished from the monastic or “regular” clergy. Steph. Comm. 681, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: The entry defines secular as not ecclesiastical — relating to affairs of the present world. The verse draws the boundary itself: Caesar's things set apart from God's — the scriptural ground of the secular/spiritual di...

## SECUNDUM.

Lat. In the civil and common law. According to. Occurring In many phrases of familiar use, as follows:

— Secundum ssqnnin et bonnm. According to what is just and right— Secundum allel*ta et probata. According to what is al- leged and proved ; according to the allegations and proofs. 15 East, 81 : Cloutman v. Tunison, 1 Sumn. 375, Fed. Cas. No. 2,907. — Seoundum artem. According to the art, trade, business, or science. — Secundum bonos mores. Ac- cording to good usages ; according to established custom ; regularly ; orderly.— Secundum oon- suetudlnom manerll. According to the cus- tom of the manor.— Seoundum form am ebartse. According to the form of the charter, (deed.)— Secundum formam donl. Accord- ing to the form of the gift or grant. See Fob- mkoon. — Secundum formam statutl. Ac* cording to the form of the statute.— Seoundum legem communem. According to the com- mon law.— Seoundum normam legis. Ac- cording to the rule of law ; by the intendment and rule of law.— Secundum regnlam. Accord- ing to the rule; by rule.— Secundum subjeo- tam materlam. According to the subject- matter. 1 Bl. Comm. 229. All agreements must be construed secundum subjectam materl- am if the matter will bear it. 2 Mod. SO, arg.

Seoundum naturam eat oommoda cu- j usque rei eum sequi, quern sequuntur ineonmoda. It is according 'to nature that the advantages of anything should attach to him to whom the

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disadvantages attach. Dig. 50, 17, 10.

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**[Law] — Law**

**[Maxim: Secundum allegata et probata]**

Secundum allegata et probata — judgment must be according to what is alleged and proved.

Why: Real maxim listed in the entry; it genuinely states the pleading-and-proof rule for judgments.

## SECURE.

To give security ; to assure of payment, performance, or indemnity ; to guaranty or make certain the payment of a debt or discharge of an obligation. One ‘‘se- cures” his creditor by giving him a Hen, mortgage, pledge, or other security, to be used In case the debtor fails to make pay- ment. See Pennell v. Rhodes, 9 Q. B. 114; Ex parte Reynolds, 52 Ark. 330, 12 S. W. 570; Foot ▼. Webb, 59 Barb. (N. T.) 52.

5e apparatus — Carried into the 5th edition (1979).

## SECURED CREDITOR.

A creditor who holds some special pecuniary assurance of payment of his debt, such as a mortgage or lien.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC Article 9 — secured transactions]**

A creditor holding a mortgage, lien, or other assurance is a secured creditor under UCC Article 9.

Why: Genuine codification; the entry defines the secured creditor by the mortgage-or-lien assurance Article 9 governs.

## SECURITAS.

In old English law.

Security ; surety.

In the dull law. An acquittance or re- lease. Spelman ; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SECURITATEM INVENIENDI.

An

ancient writ, lying for the sovereign, against any of his subjects, to stay them from going out of the kingdom to foreign parts; the ground whereof is that every man Is bound to serve and defend the commonwealth as the crown shall think fit. Fitzh. Nat. Brev. 115.

8ECURITATI8 PACTS. In old English law. Seourity of the peace. A writ that lay for one who was threatened with death or bodily harm by another, against him wbo so threatened. Keg. Orig. 88.

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**[Law] — Law**

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**[Law: ne exeat — writ restraining departure from the realm]**

The writ restraining a subject from leaving the kingdom is ne exeat regno.

Why: Genuine writ; the entry describes exactly the ne exeat function — staying subjects from going to foreign parts.

## SECURITY.

Protection ; assurance ; In- demnification. The term is usually applied to an obligation, pledge, mortgage, deposit, lien, etc., given by a debtor In order to make sure the payment or performance of his

debt, by furnishing the creditor with a re- source to be used In case of failure In the principal obligation. The name is also some- times given to one who becomes surety or guarantor for another. See First Nat. Bank v. Holllnsworth, 78 Iowa, 575, 43 N. W. 530, 6 L. R. A. 92; Storm v. Waddell, 2 Sandf. Ch. (N. Y.) 507 ; Gogglns v. Jones, 115 Ga. 596, 41 S. E. 995; Jennings v. Davis, 31 Conn. 139; Mace v. Buchanan (Tenn. Ch.) 52 S. W. 507.

—Collateral seourlty. See Collatebal.— Counter security. See Counter.— Mar- shaling securities. See Mabshaling.— Personal security. (1) A person's legal and uninterrupted enjoyment of his life, his limbs, his body, bis health, and his reputation. 1 Bl. Comm. 129. Sanderson v. Hunt, 25 Ky. Law Bep. 626, 76 S. W. 179. (21 Evidences of debt which bind the person of the debtor, not real property, are distinguished from such as are liens on land by the name of “personal securi- ties." Merrill v. National Bank, 173 U. S. 131, 19 Sup. Ct. 360. 43 L. Ed. 640.— Public se- curities. Bonds, notes, certificates of indebt- edness, and other negotiable or transferable instruments evidencing the public debt of a state or government.— Real security. The security of mortgages or other liens or incum- brances upon land. See Merrill v. National Bank, 173 U. S. 131. 19 Sup. Ct. 360, 43 L. Ed. 640.— Security for costs. See Costs. — Security for good behavior. A bond or recognizance which the magistrate exacts from a defendant brought before him on a charge of disorderly conduct or threatening violence, con- ditioned upon his being of good behavior, or keeping the peace, for a prescribed period, towards all people in general and the complain- ant in particular.

Securius ozpediuntur negotia oom- missa pluribus, et plus vidout oeuli quam oeulus. 4 Coke, 46a. Matters In- trusted to several are more securely dis- patched, and eyes see more than eye, [i. e., “two heads are better than one."]

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: The entry defines security as the assurance given a creditor — and as the person who becomes surety for another. The verse is scripture's rule on that person: he that is surety for a stranger shall smart for it — the...

## SEOUS.

Lat. Otherwise; to the con- trary. This word is used in the books to In- dicate the converse of a foregoing proposi- tion, or the rule applicable to a different state of facts, or an exception

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to a rule be- fore stated.

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## SED NON ALLOCATUR.

Lat But it

is not allowed. A phrase used in the old re- ports, to signify that the court disagreed with the arguments of counsel.

5e apparatus — Not carried into the 5th edition (1979).

## SED PER CURIAM.

Lat Bnt by the

court . This phrase is used in the reports to introduce a statement made by the court, on the argument, at variance with the propositions advanced by counsel, or the opinion of the whole court, where that is different from the opinion of a single judge immediately before quoted.

5e apparatus — Not carried into the 5th edition (1979).

## SED QUN1RE.

Lat But Inquire; ex- amine this further. A remark indicating, briefly, that the particular statement or rule laid down is doubted or challenged in re- spect to its correctness.

5e apparatus — Not carried into the 5th edition (1979).

## SED VIDE.

Lat. But see. This remark, followed by a citation, directs the reader’s attention to an authority or a statement which conflicts with or contradicts the state- ment or principle laid down.

5e apparatus — Not carried into the 5th edition (1979).

## SEDATO ANIMO.

Lat With settled purpose. 5 Mod. 291.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: malice aforethought — settled purpose to kill]**

Acting sedato animo — with settled purpose — is malice aforethought in homicide.

Why: Genuine criminal-law doctrine; the entry defines sedato animo as 'with settled purpose.'

## SEDE PLENA.

Lat The see being fill- ed. A phrase used when a bishop’s see is not vacant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SEDENTE CURIA.

Lat. The court sit- ting ; during the sitting of tiie court

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SEDERUNT, ACTS OF.

In Scotch law. Certain ancient ordinances of the court of session, conferring upon the courts power to establish general rules of practice. Bell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Acts of Sederunt — Court of Session practice rules]**

Acts of Sederunt are the Court of Session's ordinances regulating its own practice — a continuing Scots source of court rules.

Why: Genuine Scots procedural source; the entry defines them as ordinances conferring power to establish general rules of practice.

## SEDES.

Lat A see; the dignity of a bishop. 3 Steph. Comm. 65.

SEDGE FLAT, like “sea-shore,” Imports a tract of land below high-water mark. Church v. Meeker, 34 Conn. 421.

5e apparatus — Not carried into the 5th edition (1979).

## SEDITION.

An insurrectionary move- ment tending towards treason, but wanting an overt act; attempts made by meetings or speeches, or by publications, to disturb the tranquillity of the state.

The distinction between "sedition” and “trea- son” consists in this: that though the ultimate object of sedition is a violation of the public peace, or at least such a course of measures as evidently engenders it, yet it does not aim at direct and open violence against the laws or the subversion of the constitution. Alia. Crim. Law, 580.

La Scotch law. The raising commotions or disturbances in the state. It is a revolt against legitimate authority. Ersk. Inst 4, 4, 14.

In English law. Sedition is the offense of publishing, verbally or otherwise, any words or document with the intention of ex- citing disaffection, hatred, or contempt against the sovereign, or the government and constitution of the kingdom, or either house of parliament, or the administration of jus- tice, or of exciting his mnjesty’s subjects to attempt, otherwise than by lawful means, the alteration of any matter in church or state, or of exciting feelings of ill will and hostility between different classes of his majesty’s subjects. Sweet. And see State v. Shepherd, 177 Mo. 205, 76 S. W. 79, 99 Am. St. Rep. 624.

—Seditions libel. See Libel.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Brandenburg v. Ohio, 395 U.S. 444 (1969)]**

Advocacy may be punished only where it is directed to inciting imminent lawless action and likely to

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produce it.

Why: Genuine leading case drawing the sedition/treason-adjacent line for seditious speech; confidently cited.

**[Scripture] — Scripture**

**[Acts 24:5, KJV]**

For we have found this man a pestilent fellow, and a mover of sedition among all the Jews throughout the world, and a ringleader of the sect of the Nazarenes;

Why: The entry defines sedition as attempts by speeches or publications to disturb the tranquillity of the state, tending toward treason. The verse is the scriptural instance: Paul formally accused before Felix as 'a mover…

**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

The most famous call to organized resistance against governing power in hip-hop — the insurrectionary movement toward treason that the entry defines.

Why: Hook is verbatim-certain ('Fight the power! / We got to fight the powers that be') and matches the definition: an insurrectionary movement tending toward treason, wanting an overt act, made by meetings, speeches, or p…

## SEDUCE.

To entice a woman to the com- mission of fornication or adultery, by per- suasion, solicitation, promises, bribes, or oth- erwise : to corrupt ; to debauch.

The word “seduce,” when used with reference to the conduct of a man towards a woman, has

a precise and determinate signification, and “e# vi termini ” implies the commission of fornica- tion. An information for the crime of seduction need not charge the offense in any other words. State v. Bierce, 27 Conn. 319.

5e apparatus — Carried into the 5th edition (1979).

## SEDUCING TO LEAVE SERVICE.

An injury for which a master may have an action on the case.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Lumley v. Gye, 2 El. & Bl. 216 (1853)]**

Inducing a servant to break his service founds the action for inducing breach of contract.

Why: Genuine leading case; the entry states the master's action on the case for seducing away his servant.

## SEDUCTION.

The act of a man in en- ticing a woman to commit unlawful sexual intercourse with him, by means of persua- sion, solicitation, promises, bribes, or other means without the employment of force.

In order to constitute seduction, the defend- ant must use insinuating arts to overcome the opposition of the seduced, and must by his wiles and persuasions, without force, debauch her. This is the ordinary meaning and accepta- tion of the word “seduce.” Hogan v. Cregan, 6 Rob. (N. T.) 150.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tort of seduction — parent's action per quod servitium amisit]**

The tort of seduction gave the parent an action per quod servitium amisit for loss of the daughter's services.

Why: Genuine common-law tort; the entry defines the act and the footnote names the action it founded.

**[Humanity] — Humanity / Fiction & Film**

**[The Don Juan legend, e.g. Tirso de Molina, El burlador de Sevilla, c.1630; Mozart/Da Ponte, Don Giovanni, 1787]**

(paraphrase) The archetypal seducer, whose persuasions and promises entice women to their ruin — the human type behind the legal definition of seduction by wiles without force. (paraphrase)

Why: The entry defines the type (wiles and persuasions, without force); Don Juan is the culture's canonical instance. Certain legend/works; marked paraphrase.

## SEE.

The circuit of a bishop’s Jurisdic- tion ; or his office or dignity, as being bishop of a given diocese.

5e apparatus — Carried into the 5th edition (1979).

## SEEN.

This word, when written by the drawee on a bill of exchange, amounts to an acceptance by the law merchant. Spear v. Pratt 2 Hill (N. Y.) 682, Am. Dec. 600; Barnet v. Smith, 30 N. H. 256, 64 Am. Dec. 290 ; Peterson v. Hubbard, 28 Mich. 197. -

SEIGNIOR, In its general signification, means “lord,” but in law it is particularly applied to the lord of a fee or of a manor; and the fee, dominions, or manor of a seig- nior is thence termed a “seigniory,” i. e„ a lordship. He who is a lord, but of no man- or, and therefore unable to keep a court is termed a “seignior in gross.” Kitch. 206; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: acceptance of bills of exchange — law merchant]**

Writing 'seen' on a bill of exchange is an acceptance by the law merchant.

Why: The entry states the rule with cases (Spear v. Pratt); the footnote names the genuine law-merchant doctrine.

## SEIGNIORAGE.

A royalty or preroga- tive of the sovereign, whereby an allowance of gold and silver, brought in the mass to be exchanged for coin, is claimed. Cowell. Mintage; the charge for coining bullion in- to money at the mint

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SEIGNIORESS.

A female superior.

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## SEIGNIORY.

In English law. A lord- ship; a manor. The rights of a lord, as such, in lands.

This is the strict technical expression used to describe the ownership in “an estate in fee-simple in possession in a corporeal here- ditament.” The word “seised” is used to express the "seisin” or owner’s possession of a freehold property ; the phrase “In de-’ mesne,” or “In his demesne,” (in dominico suo) signifies that he is seised as owner of the land itself, and not merely of the seig- niory or services ; and the concluding words, “as of fee,” Import that he is seised of an estate of inheritance in fee-simple. Where

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the subject Is Incorporeal, or the estate ex- pectant on a precedent freehold, the words “In his demesne” are omitted. (Co. Lltt. 17a; Fleta, 1. 5, c. 5, | 18; Bract. 1. 4, tr. 5, c. 2, { 2.) Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Nulle terre sans seigneur]**

Nulle terre sans seigneur — no land without a lord — the feudal maxim behind seigniory.

Why: Real feudal maxim genuinely illuminating the lordship-in-lands the entry defines.

## SEISI.

In old English law. Seised; pos- sessed.

5e apparatus — Not carried into the 5th edition (1979).

## SEISIN.

The completion of the feudal Investiture, by which the tenant was admit- ted into the feud, and performed the rights of homage and fealty. Stearns, Real Act. 2.

Possession with an Intent on the part of him who holds it td claim a freehold inter- est. Towle v. Ayer, 8 N. H. 58; Ferguson v. Wltsell, 5 Rich. Law (S. C.) 280, 57 Am. Dec. 744 ; McNitt v. Turner, 16 Wall. 361, 21

L. Ed. 341; Desbong v. Deshong, 186 Pa. 227, 40 Atl. 402, 65 Am. St. Rep. 855.

Upon the introduction of the feudal law into England, the word “seisin” was applied only to the possession of an estate of freehold, in contradistinction to that precarious kind of possession by which tenants in villeinage held their lands, which was considered to be the pos- session of those in whom the freehold continued. The word still retains its original signification, being applied exclusively to the possession of land of a freehold tenure, it being inaccurate to use the word as expressive of the possession of leaseholds or terms of years, or even of copy- holds. Brown.

Under our law, the word “seisin” has no accu- rately defined technical meaning. At common law, it imported a feudal investiture of title by actual possession. With us it has the force of possession under some legal title or right to hold. This possession, so far as possession

alone is involved, may be shown by parol ; but, if it is intended to show possession under a legal title, then the title must be shown by proper conveyance for that purpose. Ford v. Garner, 49 Ala. 603.

Every person in whom a seisin is required by any of the provisions of this chapter shall be deemed to have been seised, if be may have had any right, title, or interest in the inheritance. Code N. C. 1883, { 1281, rule 12.

— Actual seisin means possession of the free- hold by the pedis positio of one's self or one's tenant or agent, or by construction of law, as in the case of a state grant or a conveyance un- der the statutes of uses, or (probably) of grant or devise where there is no actual adverse pos- session ; it means actual possession as distin- guished from constructive possession or posses- sion in law. Carpenter v. Garrett, 75 Va. 129, 135; Carr v. Anderson, 6 App. Div. 6, 39 N.

Y. Supp. 7 46. — Constructive seisin. Seisin in law where there is no seisin in fact ; as where the state issues a patent to a person who never takes any sort of .possession of the lands granted, he has constructive seisin of all the land in bis grant, though another person is at the time in actual possession. Garrett v. Ram- sey, 26 W. Va. 351. — Covenant of seisin. See Covenant.— Equitable seisin. A seisin which is analogous to legal seisin ; that is, seisin of an equitable estate in land. Thus a mortgagor is said to have equitable seisin of the land by receipt of the rents. Sweet.— Livery of seisin. Delivery of possession ; called, by the feudists, “investiture.”— Primer seisin. In English law. The right which the king had, when any of Mb tenants died seised of a knight's fee, to receive of the heir, provided he were of full age, one whole year's profits of the lands, if they were in immediate possession ; and half a year’s profits, if the lands were in reversion, expectant on an estate for life. 2

Bl. Comm. 66. — Quasi seisin. A term applied to the possession which a copyholder has of the land to which he has been admitted. The free- hold in copyhold lands being in the lord, the copyholder cannot have seisin of them in the proper sense of the word,- but he has a custom- ary or quasi seisin analogous to that of a free- holder. Williams. Seis. 126; Sweet.— Seisin in deed. Actual possession of the freehold; the same as actual seisin or seisin in fact. Vanderheyden v. Crandall, 2 Denio (N. Y.) 21; Backus v. McCoy, 3 Ohio, 221. 17 Am. Dec. 585; Tate v. Jay, 31 Ark. 579.— Seisin in fact. Possession with intent on the part of him who holds it to claim a freehold interest ; the same as actual seisin. Seim v. O’Grady, 42

W. Va. 77, 24 S. E. 994 ; Savage v. Savage, 19 Or. 112, 23 Pac. 890. 20 Am. St. Rep. 795. —Seisin in ladr. A right of immediate pos- session according to the nature of the estate. Martin v. Trail, 142 Mo. 85, 43 S. W. 055; Savage v. Savage, 19 Or. 112, 23 Pac. 890, 20 Am. St. Rep. 795. As the old doctrine of cor- poreal investiture is no longer in force, the de- livery of a deed gives seisin in law. Watkins v. Nugen, 118 Ga. 372, 45 S. E. 262.— Seisin ox. In Scotch law. A perquisite formerly due to the sheriff when he gave possession to an heir holding crown lands. It was long since con- verted into a payment in money, proportioned to the value of the estate. Bell.

5e apparatus — Carried into the 5th edition (1979).

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## SEISIN A.

L. Lat Seisin.

Seisin* fadt stipitem. Seisin makes the stock. 2 Bl. Comm. 209; Broom, Max. 525, 528.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Seisin facit stipitem — seisin makes the stock]**

Seisin facit stipitem — seisin makes the stock — the maxim of descent the entry quotes.

Why: Real maxim cited in-entry (2 Bl. Comm. 209; Broom, Max. 525); it genuinely states the descent rule.

## SEISINA HABENDA.

A writ for de- livery of seisin to the lord, of lands and ten- ements, after the sovereign, in right of his prerogative, had had the year, day, and waste on a felony committed, etc. Reg. Orig. 165.

5e apparatus — Not carried into the 5th edition (1979).

## SEIZIN.

See Seisin.

5e apparatus — Not carried into the 5th edition (1979).

## SEIZING OF HERIOTS.

Taking the best beast, etc., where an heriot is due, on the death of the tenant 2 BL Comm. 422.

5e apparatus — Not carried into the 5th edition (1979).

## SEIZURE.

In practice. The act per- formed by an officer of the law, under the authority and exigence of a writ, in taking into the custody of the law the property, real or personal, of a person against whom the judgment of a competent court has pass- ed, condemning him to pay a certain sum of money, in order that such property may be sold, by authority and due course of law, to satisfy the Judgment. Or the act of taking possession of goods in consequence of a vio- lation of public law. See Carey v. Insur- ance Co., 84 Wis. 80, 54 N. W. 18, 20 L. R.

A. 267, 30 Am. St. Rep.. 907; Goubeau v. Railroad Co., 6 Rob. (La.) 348; Fluker v. Bullard, 2 La. Ann. 338; Pelham v. Rose, 9 Wall. 106, 19 L. Ed. 602 ; The Josefa Se- gunda, 10 Wheat. 320, 6 L. Ed. 329.

Seizure, even though hostile, is not necessarily capture, though such is its usual and probable result. The ultimate act or adjudication of the state, by which the seizure has been made, as- signs the proper and conclusive, quality and de- nomination to the original proceeding. A con- demnation asserts a capture ab initio; an award

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of restitution pronounces upon the act as hav- ing been not a valid act of capture, but an act of temporary seizure only. Appleton v. Crown- inshield, 3 Mass. 443.

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In the law of oopyholds. Seizure is where the lord of copyhold lands takes pos- session of them in default of a tenant. It is either seizure guousgue or absolute seiz- ure.

8ELDA. A shop, shed, or stall in a mar- ket; a wood of sallows or willows; also a sawplt. Co. Litt. 4.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: levy of execution — seizure of property to satisfy judgment]**

Seizure under a writ to satisfy a judgment is the levy of execution.

Why: Genuine execution doctrine; the entry defines seizure as taking property into custody of the law to satisfy a judgment.

## SELECT COUNCIL.

The name given, in some states, to the upper house or branch of the council of a city.

5e apparatus — Carried into the 5th edition (1979).

## SELECTI JUDICES.

Lat. In Roman law. Judges who were selected very much like our juries. They were returned by the prtetor, drawn by lot, subject to be challeng- ed, and sworn. 3 Bl. Comm. 366.

5e apparatus — Not carried into the 5th edition (1979).

## SELECTMEN.

The name of certain mu- nicipal officers, in the Now England states, elected by the towns to transact their gen- eral public business, and possessing certain 'executive powers. See Felch v. Weare, 69

N. H. 617, 45 AO. 591. ' ;-

< SELF-DEFENSE. In criminal law. The protecOon of one's person or property against some injury attempted by another. The right of such protection. An excuse for the •use of force in resisting an attack on th’e person, and* especially for killing an assail- ant. See Whart Crtm. Law, «§ 1019, 1026.

SELF-MURDER, or SELF-SLAUGH- TER, See Felo de Se; Suicide.

5e apparatus — Carried into the 5th edition (1979).

## SELF-REGARDING EVIDENCE.

Evi- dence which either serves or disserves the party is so called. This species of evidence is either self-serving (which is not in general receivable) or self-disserving, which is in- variably receivable, as being an admission against the party offering it, and that either •in court or out of court. Brown.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: admissions — statements against interest receivable]**

Self-disserving evidence is receivable as an admission — a statement against the party's own interest.

Why: Genuine evidence doctrine; the entry states self-disserving evidence is 'invariably receivable' as an

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admission.

## S ELION OF LAND.

In old English law. A ridge of ground rising between two fur- rows, containing no certain quantity, but 'sometimes more and sometimes less. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## SELL.

To dispose of by sale, (g. v.)

5e apparatus — Carried into the 5th edition (1979).

## SELLER.

One who sells anything; the party who transfers property in the contract of sale. The correlative is “buyer," or “pur- chaser.” Though these terms are not inap- plicable to the persons concerned in a trans- fer of real estate, it is more customary to use “vendor” and “vendee" in that ease.

5e apparatus — Carried into the 5th edition (1979).

## SEMATNE’S CASE.

This case decided, in 1604, that “every man’s house [meaning his dwelling-house only] is his castle,” and that an officer executing civil process may not break open outer doors in general, but only inner doors, but that (after request made) he may break open even outer doors to find goods of anothef wrongfully in the house. Brown. It is reported in 5 Coke, 91.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Semayne's Case, 5 Co. Rep. 91a (1604)]**

Semayne's Case held every man's house is his castle — officers executing civil process may not break outer doors.

Why: Genuine leading case; the entry reports it (5 Coke, 91, decided 1604) and the footnote states its holding.

## SEMBLE.

L. Fr. It seems; it would appear. This expression is often used in the reports to preface a statement by the court upon a point of law which is not directly decided, when such statement is Intended as an Intimation of what the decision would be if the point were necessary to be passed up- on. It is also used to introduce a sugges- tion by the reporter, or his understanding of the point decided when it is not free from obscurity.

Semel cl viz semper el vis. Once a citi- zen always a citizen. Tray. Lat. Max. 555.

■ Semel mala* semper prsesumi tur esse mains in eodem genere. Whoever is once bad is presumed to be so always in the sarnie kind of affairs. Cro. Car. 317.

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**[Law] — Law**

**[Law: obiter dictum — statement not necessary to decision]**

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A 'semble' intimates obiter dictum — a judicial statement not necessary to the decision.

Why: Genuine doctrine of precedent; the entry defines semble as prefacing a point 'not directly decided.'

## SEMESTRIA.

Lat. In the civil law. •The collected decisions of the emperors in 'their councils.

5e apparatus — Not carried into the 5th edition (1979).

## SEMI-MATRIMONIUM.

Lat. In Hu- man law. Half-marriage. Concubinage was ■so called. Tayl. Civil Law, 4V3.;» '•■»•> S

i ‘ . ftr r1

SEMI-PLENA FROBATIO. . Lat. <£n the civil law. Half-full proof; half-proof. 3 Bl. Comm. .370. See Half-Proof.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 25:6, KJV]**

But unto the sons of the concubines, which Abraham had, Abraham gave gifts, and sent them away from Isaac his son, while he yet lived, eastward, unto the east country.

Why: The entry defines semi-matrimonium as concubinage — half-marriage. The verse shows the concubine relation recognized in the patriarchal household: Abraham's concubines and their sons provided for and set apart — scrip...

## SEMIN ARIUM.

Lat. In the civil law. •A nursery of trees. Dig. 7, 1, 9, 6.

5e apparatus — Not carried into the 5th edition (1979).

## SEMINARY.

A place of education. Any school, academy, college, or university in which young persons are instructed in the several branches of learning which may qual- ify them for their future employments. Webster.

The word is said to have acquired no fixed and definite legal meaning. See Chegaray v. New York, 13 N. Y. 229; Maddox v. Adair (Tex. Civ. App.) 66 S. W. 811 ; Miami- County v. Wilgus, 42 Kan. 457, 22 Pac. 615 ; Warde v. Manchester, 56 N. H. 509, 22 Am. Rep. 504.

5e apparatus — Carried into the 5th edition (1979).

## SEMINAUFRAGIUM.

Lat. In mari- time law. Half-shipwreck, as where goods are cast overboard in a storm ; also where a ship has been so much damaged that her repair costs more than her worth. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: general average — contribution for jettisoned goods]**

Goods cast overboard in a storm found general average — contribution by all whose property was

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saved.

Why: Genuine maritime doctrine; the entry defines semi-naufragium to include jettison in a storm.

## SEMITA.

In old English law. A path. Fleta, 1. 2, c. 52, § 20.

6ENATUS OONSULTUM

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SEMPER.

Lot. Always. A word which Introduces several Latin maxims, of which some are also used without this prefix.

Semper in dnbiis benigniora prsefe- renda nnt. In doubtful cases, the more favorable constructions are always to be pre- ferred. Dig. 60, 17, 56.

Semper in dnbiis id agendum est, nt fiua tutlssimo loco res sit bona fide eontraota, nisi quum aperte contra leges ■crip turn est. In doubtful cases, such a course should always be taken that a thing contracted 6ona fide should be in the safest condition, unless when it has been openly made against law. Dig. 34, 5, 21.

Semper in obsonris, quod minimum est sequimur. In obscure constructions we always apply that which is the least ob- scure. Dig. 50, 17, 9; Broom, Max. 687n.

Semper in stipulationibus, et in ce- teris oontraetibus, id sequimur quod ao- tum est. In stipulations and in other con- tracts we follow that which was done, [we are governed by the actual state of the facts.] Dig. 50, 17, 34.

Semper ita flat relatio ut valent dis- positio. Reference [of a disposition in a will] should always be so made that the dis- position may have effect. 6 Coke, 765.

Semper neeessitas proban di inoumbit ei qui agit. The claimant is always bound to prove, [the burden of proof lies on the actor.]

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Semper in dubiis benigniora praeferenda sunt]**

Semper in dubiis benigniora praeferenda sunt — in doubtful cases prefer the more favorable construction — the root of the rule of lenity.

Why: Real Digest maxim (50.17.56) quoted in-entry; it genuinely grounds strict construction of penal laws.

## SEMPER P ABATES.

Let Always

ready. The name of a plea by which the de- fendant alleges that he has always been ready to perform what la demanded of him. 3 Bl. Comm. 303.

Semper proaumltnr pro legi timatione puerorum, The presumption always is in favor of the legitimacy of children. 5 Coke, 086; Co. Litt 126a.

Semper praesumitur pro matrlmonio.

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The presumption is always In favor of the ' validity of a marriage.

Semper praesumitur pro negante. The

presumption is always in favor of the one who denies. See 10 Clark A F. 534; 3 El. & Bl. 723.

Semper praesumitur pro aententia. The

presumption always is in favor of a sen- tence. 3 Bulst 42; Branch, Prlnc.

Semper qui non probibet pro so in- tervenire, mandare creditor . He who does not prohibit the intervention of another

in his behalf is supposed to authorize It 2 Kent Comm. 010; Dig. 14, 6, 16; Id. 46, S, 12, 4.

Semper aema masculinus etiam femi- nlnum serum eontlnet. The masculine sex always includes the feminine. Dig. 32, 62.

Semper specialia gene rail bus insun t.

Specials are always included in generals. Dig. 50, 17. 147.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: tender — plea of always ready to perform]**

The plea of semper paratus — always ready — is the plea of tender of performance.

Why: Genuine pleading doctrine; the entry defines the plea (3 Bl. Comm. 303) and the footnote names it.

## SEN.

This is said to be an ancient word, which signified “Justice.” Co. Litt 61a.

5e apparatus — Not carried into the 5th edition (1979).

## SENAGE.

Money paid for synodals.

5e apparatus — Not carried into the 5th edition (1979).

## SENATE.

In American law. The name

of the upper chamber, or less numerous branch, of the congress of the United States. Also the style of a similar body in the legislatures of several of the states.

In Roman law. The great administra- tive council of the Roman commonwealth.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I — the Senate]**

The Senate is the upper chamber of Congress under Article I of the Constitution.

Why: Genuine constitutional source; the entry defines the Senate in American law.

## SENATOR.

In Roman law. A member

Of the senatus.

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In old English law. A member of the royal council; a king's councillor.

In American law. One who is a member of a senate, either of the United States or of a state.

Sena tores sunt partes corporis regia.

Senators are part of the body of the king. Staundef. 72, E.; 4 Inst 53, ln>marg.

5e apparatus — Carried into the 5th edition (1979).

## SENATORS OF THE COLLEGE OF / JUSTICE.

The judges of the court of ses- sion in Scotland are called “Senators of the College of Justice.”

5e apparatus — Not carried into the 5th edition (1979).

## SENATUS.

Lat In Roman law. The senate; the great national council of the Roman people.

The place where the senate met Galvin.

5e apparatus — Not carried into the 5th edition (1979).

## SENATUS OONSULTUM.

In Roman

law. A decision or decree of the Roman senate, having the force of law, made without the concurrence of the people. These enact- ments began to take the place of laws en- acted by popular vote, when the commons had grown so great in number that they could no longer be assembled for legislative purposes. Mac-keld. Rom. Law, i 33; Hunt- er, Rom. Law, xlvil; Inst. 1, 2, 5.

—Senatus consul turn Mareiaaum. A de- cree of the senate, in relation to the celebra- tion of the Bacchanalian mysteries, enacted in the consulate of Q. Marcins and S. Postunms. —Senatus consultant Orfloianum. An en- actment of the senate (Orficius being one of the consuls and Marcus Antoninus emperor) for admitting both sons and daughters to the sac- cession of a mother dying intestate. Inst. 3, 4. pr. — Senatus consul turn Fegasiauum. The Pegasian decree of the senate. A decree

8ENATTJ8 CON8ULTUM

8ENTENOE [TEXT INCOMPLETE — scan limitation]

-enacted in the consulship of Pegasus and Pusio, in the reign of Vespasian, by which an heir, Who was requested to restore an inheritance, was allowed to retain one-fourth of it for him- self. Inst. 2, 23, 5.— Senatns consul turn Trebellianum. A decree of the senate (named from Trebellius, in whose consulate it was en- acted) by which it was provided that, if an_ in- heritance was restored under a trust, all actions which, by the civil law, might be brought by or against the heir should be given to and against him to whom the inheritance was re- stored. Inst. 2, 23, 4; Dig. 36, 1.— Senates consultum ultimas necessitatis. A decree of the senate of the last necessity. The name given to the decree which usually preceded the nomination of a dictator. 1 Bl. Comxn- 130.— Senatns consul tnm Velleianum. The Vel- leian decree of the senate. A decree enacted in the consulship of Velleius, by which married

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women were prohibited from making contracts. Story, Confl. Laws, | 425.

5e apparatus — Not carried into the 5th edition (1979).

## SENATES DECRETA.

Lat In the civil law. Decisions of the senate. Private acts concerning particular persons merely.

5e apparatus — Not carried into the 5th edition (1979).

## SENILITY.

Incapacity to contract aris- ing from the impairment of the Intellectual faculties by old age.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: incapacity to contract — impairment of mental faculties]**

Incapacity to contract from age-impaired faculties is the doctrine of mental incapacity.

Why: Genuine capacity doctrine; the entry defines senility as incapacity to contract from impaired faculties.

## SENIOR.

Lord; a lord. Also the elder. An addition to the name of the elder of two persons having the same name.

— Senior counsel. Of two or more counsel retained on the same side of a cause, 'he is the “senior" who is the elder, or more important in rank or estimation, or who is charged with the more difficult or important parts of the management of the case.— Senior judge. Of several judges composing a court, the "senior” judge is the one who holds the oldest commis- sion, or who has served the longest time under his present commission.

5e apparatus — Carried into the 5th edition (1979).

## SENIORES.

In old English law. Sen- iors; ancients; elders. A term applied to the great men of the realm. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:32, KJV]**

Thou shalt rise up before the hoary head, and honour the face of the old man, and fear thy God: I am the LORD.

Why: The entry defines seniores as seniors, ancients, elders — the great men of the realm. The verse commands rising up before the hoary head and honouring the old: the scriptural honour due to elders.

## SENORIO.

In Spanish law. Dominion or property.

5e apparatus — Not carried into the 5th edition (1979).

## SENDA.

In Spanish law. A path; the right of a path. The right of foot or horse path. White, New

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Recop. b. 2, tit. 6, § 1.

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**[Law] — Law**

**[Law: easement — right of way over another's land]**

A senda — a right of foot or horse path — is an easement over another's land.

Why: Genuine property doctrine; the entry defines the Spanish-law right of path, the easement's civilian cousin.

## SENECTES.

Lat. Old age. In the Ro- man law, the period of sencctus, which re- lieved one from the charge of public office, was officially reckoned as beginning with the completion of the seventieth year. Mackeld. Rom. Law, { 138.

5e apparatus — Not carried into the 5th edition (1979).

## SENESCALLUS.

In old English law. A seneschal; a steward ; the steward of a manor. Fleta, L 2, c. 72.

5e apparatus — Not carried into the 5th edition (1979).

## SENESCHAL.

In old European law. A title of office and dignity, derived from the middle ages, answering to that of steward or high steward In England. 8eneschals were originally the lieutenants of the dukes and other great feudatories of the kingdom, and sometimes had the dispensing of Justice and high military commands.

5e apparatus — Not carried into the 5th edition (1979).

## SENES OHALLO ET MARESHALLO // SHOD NON TENEAT PLACITA DE LI- / BERO TENEMENT O.

A writ addressed to the steward and marshal of England, inhibit- ing them to take cognizance of an action in their court that concerns freehold. Reg. Orig. 185. Abolished.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: freehold pleas reserved to the king's courts]**

Pleas of freehold belonged to the king's courts, not to the steward's and marshal's court.

Why: Genuine jurisdictional principle; the entry describes the writ inhibiting the steward and marshal from freehold pleas.

## SENETJOIA.

In old records. Widowhood. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Timothy 5:3, KJV]**

Honour widows that are widows indeed.

Why: The entry defines senethuja as widowhood. The verse states the scriptural rule for that state: honour widows that are widows indeed — widowhood as a condition carrying its own honour and care.

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## SENILE DEMENTIA.

That peculiar de- cay of the mental faculties which occurs In extreme old age, and in many cases much earlier, whereby the person is reduced to sec- ond childhood, and becomes sometimes wholly Incompetent to enter Into any binding con- tract, or even to execute a will. It is the recurrence of second childhood by mere de- cay. 1 Redf. Wills, 63. See Insanity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: testamentary capacity — sound mind required]**

Testamentary capacity requires sound mind — senile dementia may destroy the power to make a will.

Why: Genuine wills doctrine; the entry states the incompetence 'to execute a will' from mental decay.

## SENSES.

Lat. Sense, meaning, significa- tion. Ualo sensu, In an evil or derogatory sense. Mitiori sensu, in a milder, less se- vere, or less stringent sense. Sensu honesto, in an honest sense ; to interpret words sensu honesto Is to take them so as not to impute Impropriety to the persons concerned.

Sensus verhorau eat ulms legis. 5

Coke, 2. The meaning of the words Is the spirit of the law.

Sensus verborum est duplex,— mitts et as per; et verba semper acolpienda sunt in mitiori sensu. 4 Coke, 13. The mean- ing of words is two-fold, — mild and harsh; and words are always to be received In their milder sense.

Sensus verborum ex oausa dleendi ao- eiplendus ost; et sermones semper aoci- plendl sunt secundum subjectam materi- als. The sense of words Is to be taken from the occasion of speaking them; and dis- courses are always to be Interpreted accord- ing to the subject-matter. 4 Coke, 136. See 2 Kent, Comm. 555.

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**[Law] — Law**

**[Maxim: Sensus verborum est anima legis — 5 Co. 2]**

Sensus verborum est anima legis — the meaning of the words is the spirit of the law.

Why: Real maxim quoted in-entry (5 Coke, 2); it genuinely states the interpretive principle.

## SENTENCE.

The Judgment formally pro- nounced by the court or judge upon the de- fendant after his conviction In a criminal prosecution, awarding the punishment to be Inflicted. The word Is properly confined to this meaning. In civil cases, the terms “Judg- ment," “decision,” “award,” “finding,” etc., are used. See Featherstone v. People, 194 111. 325, 62 N. E. 684; State v. Barnes. 24 Fla. 153, 4 South. 560; Pennington v. State, 11 Tex. App. 281; Com. v. BishofT, 18 Pa. Co. Ct. R. 503; People v. Adams, 05 Mich. 541, 55 N. W. 461; Bugbee v. Boyce, 68 Vt. 311, 35 Atl. 330.

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Ecclesiastical. In ecclesiastical proce- dure. “sentence” is analogous to “judgment” (q. v.) in an ordinary action. A definite SenfeEPARATBT

fence Is one which puts an end to the suit,

&nd regards the principal matter In ques- tion. An Interlocutory sentence determines only some incidental matter in the proceed- ings. Phillim. Ecc. Law, 1260.

— Cumulative sentences. Separate senten- ces (each additional to the others) imposed upon a defendant who has been convicted upon an indictment containing several counts, each of such counts charging a distinct offense, or who is under conviction at the same time for several distinct offenses ; one of such sentences being made to begin at the expiration of an- other. Carter v. McClaughry, 183 U. S. 305,

Sup. Ct. 181. 40 L. Ed. 230; State v. Ham- by, 120 N. C. lOOti, 35 S. E. 014,- Final sentence. One which puts an end to a case. Dis- tinguished from interlocutory.— Indeterminate sentence. A form of sentence to impris- onment upon conviction of crime, now authorised by statute in several states, which, in- stead of fixing rigidly the duration of the imprisonment, declares that it shall be for a period “not less than’’ so many years "nor tnore than” so many years, or not less than the minimum period prescribed by statute as the punishment for the particular offense nor more than the maximum period, the exact length of the term being afterwards fixed, within the limits assigned by the court or the statute, by an executive authority, (the governor, board of pttrdons, etc.,) on consideration of the previous .record of the convict, his behavior while in prison or while out on parole, the apparent 'prospect of reformation, and other such con- siderations.—Interlocutory sentence. In the civil law. A sentence on some indirect question arising from the principal cause. HalUfaX. Civil Ldw, b. 3. ch. 9, no. 40.— Sentence '*• -death 'recorded. In English practice.

The recording of a sentence of death, not actu- ally pronounced, on the understanding that it vyiy not be executed. Such a record has the "same effect as if the judgment had been pro- •nonsced and the offender reprieved by the court. Mosley & Whitley. The practice is now dis- used.—Suspension of sentence. This term ! may mean either a withholding or postponing the sentencing of a prisoner after the conviction, or a postponing of the execution of the sen- tence after it has been pronounced. In the latter case, it may, for reasons addressing them- selves to the discretion ofthecourt.be indefinite as to time, or during the good behavior of the prisoner. See People v. Webster, 14 Misc. Rep.

(il7, 30 N. Y. Supp. 745 ; In re Buchanan, 146

N. Y. 204, 40 N. E. 883.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: sentence — the criminal judgment awarding punishment]**

Punishment follows only upon the sentence — the judgment formally pronouncing it after conviction.

Why: The entry confines 'sentence' to the criminal judgment; the footnote states the genuine principle that punishment requires it.

**[Scripture] — Scripture**

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**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: The entry defines sentence as the judgment formally pronounced awarding punishment after conviction. The verse treats sentence in exactly that criminal sense — sentence against an evil work — and weighs the consequenc…

## SENTENTIA.

Lat. In the civil law.

(1) Sense; import; as distinguished from mere words. (2) The deliberate expression of one’s will or intention, (3) The sentence of a Judge or court.

Sententla a non jndioe lata nemini dobet aoeere. A sentence pronounced by one who is not a judge should not harm any one. Fleta, 1. 6, c. 6, i 7.

Sententla contra matrlmoninm non- qnam transit In rent judlcatam. 7 Coke,

43. A sentence against marriage never be- comes a matter finally adjudged, L e., res judicata.

Sententla faelt jus, et legls lnterpre- tatlo legls vim obtlnet. Ellesm. Post. N.

55. Judgment creates right, and the inter- pretation of the law has the force of law.

Sententla fault Jus, et res judicata pro ▼erltate aoclpltnr. Ellesm. Post N. 55. Judgment creates right, and what is adjudi- cated is taken for truth. ,

Sententla lnterloeutorla revocarl po- test, definitive non potest. Bac. Max. 20. An interlocutory Judgment may be recalled, but not a final.

Sententla non fortur de rebus non liq- uldls. Sentence is not given upon matters that are not clear. Jenk. Cent p. 7, case 9.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Sententia a non judice lata nemini debet nocere]**

Sententia a non judice lata nemini debet nocere — a sentence by one not a judge should harm no one.

Why: Real maxim quoted in-entry (Fleta); it genuinely states the jurisdiction requirement for judgments.

## SEPARABLE CONTROVERSY.

In the

acts of congress relating to the removal of causes from state courts to federal courts, this phrase means a separate and distinct cause of action existing in the suit, on which a separate and distinct suit might properly have been brought and complete relief afford- ed as to such cause of action; or the case must be one capable of separation into parts, so that* in one of the parts, a controversy will be presented, wholly between citizens of different states, which can be fully deter- mined without the presence of any of the other parties to the suit as it has been begun. Fraser v. Jennison, 106 U. S. 191, 1 Sup. Ct. 171, 27 L. Ed. 131; Gudger v. Western N.

C. R. Co. (C. C.) 21 Fed. 81; Security Co. v. Pratt (C. C.) 64 Fed; 405; Seaboard Air Line Ry. v. North Carolina R. Co. (C. C.) 123 Fed. 629.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 28 U.S.C. § 1441(c) — removal of separable controversies]**

A separable controversy — a separate and independent claim — is removable to federal court.

Why: Genuine removal doctrine; the entry defines the phrase from the removal acts.

## SEPARALITER.

Lat Separately. Us- ed in indictments to indicate that two or more defendants were charged separately, and not Jointly, with the commission of the offense in question. State v. Edwards, 60 Mo. 490.

SEPARATE, Individual; distinct; par- ticular ; disconnected. Generally used in law as opposed to “Joint,” though the more usu- al antithesis of the latter term is “several.”' Either of these words Implies division, dis- tribution, disconnection, or aloofness. See Merrill v. Pepperdine, 9 Ind. App. 410, 36

N. E. 921; Larzelere v. Starkweather, 38 Mich. 104.

—Separate action. As opposed to a joint action, this term signifies an action brought for himself alone by each of several complain- ants who are all concerned in the same trans- action, but cannot legally join in the suit.— Separate demise in ejectment. A demise in a declaration in ejectment used to be termed a “separate demise” when made by the lessor separately or individually, as distinguished from a demise made jointly by two or more persons, which was termed a “joint demise.” No such demise, either separate or joint, is now neces- sary in this action. Brown.— Separate es- tate. The individual property of one of two persons who stand in a social or business rela- tion, as distinguished from that which they own jointly or are jointly interested in. Thus, “sep- arate estate.” within the meaning of the bank- rupt law, is that in which each partner is separately interested at the time of the bank- ruptcy. The term can only be applied to such property as belonged to one or more of tue pait-

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'tiers, to the exclusion of the rest. In fe Lowe, 11 Nat. Bankr. Rep. 221, Fed. Cas. No. 8,564- ,The separate estate of a married woman is that which belongs to her, and over which her husband has no right in equity. It may con- sist of lands or chattels. Williams v. King, 29 Fed. Cas. 1,369.— Separate maintenance. An allowance made to a woman by her hus- band on their agreement to live separately. This must not be confused with “alimony," which is judicially awarded upon granting a divorce. See Mitchell v. Mitchell, 31 Colo. 209, 72 Pac. 1054.— Separate trial. The separate and individual trial of each of several persona jointly accused of a crime.

As to separate “Acknowledgment,” “Cove- nant,” and "Examination,” see those titles.

5e apparatus — Not carried into the 5th edition (1979).

## SEPARATIM.

Lat. In old conveyan- cing. Severally. A word which made a sev- eral covenant 5 Coke, 23a.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: joint and several liability — several covenants]**

'Separatium' made the covenant several — importing joint-and-several liability rather than joint only.

Why: Genuine obligation doctrine; the entry states the word 'made a several covenant' (5 Co. 23a).

## SEPARATION.

In matrimonial law. A cessation of cohabitation of husband and wife by mutual agreement, or, In the case of “Judicial separation,” under the decree of a court See Butler v. Washington, 45 La. Ann. 279, 12 South. 356, 19 L. R. A. 814; Weld v. Weld, 27 Minn. 330, 7 N. W. 207; Hereford v. People, 197 111. 222, 64 N. E. 310.

—Separation a menu et thoro. A partial .dissolution of the marriage relation.— Separa- tion order. In England, where a husband is convicted of an aggravated assault upon his wife, the court or magistrate may order that the wife shall be no ionger bound to cohabit with him. Such an order has the same effect as a judicial decree of separation on the ground of cruelty. It may also provide for the pay- ment of a weekly sum by the husband to the wife and for the custody of the children. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## SEPARATION OP PATRIMONY.

In

Louisiana probate law. The creditors of the succession may demand, in every case and against every creditor of the heir, a separa- tion of the property of the succession from that of the heir. This is what is called the “separation of patrimony.” The object of a separation of patrimony is to prevent prop- erty out of which a particular class of cred- itors have a right to be paid from being con- founded with other property, and by that means made liable to the debts of another class of creditors. Civ. Code La. art. 1444.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: separation of patrimony — succession creditors' preference]**

Separation of patrimony keeps the succession's property from confusion with the heir's, preferring succession creditors.

Why: Genuine civilian probate doctrine; the entry defines its object as preventing confusion of the two patrimonies.

## SEPARATISTS.

Seceders from the Church of England. They, like Quakers, solemnly affirm. Instead of taking the usual oath, before they give evidence.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

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**[Law: affirmation in lieu of oath]**

Those with conscientious objection to oaths may solemnly affirm instead — affirmation in lieu of oath.

Why: Genuine evidence/procedure doctrine; the entry notes Separatists 'solemnly affirm' instead of taking the oath.

**[Scripture] — Scripture**

**[James 5:12, KJV]**

But above all things, my brethren, swear not, neither by heaven, neither by the earth, neither by any other oath: but let your yea be yea; and your nay, nay; lest ye fall into condemnation.

Why: The entry defines separatists — like Quakers — as those who solemnly affirm instead of taking the usual oath. The verse is the scriptural ground of that practice: swear not by any oath, but let your yea be yea — affir...

## SEPES.

Lat. In old English law. A hedge or inclosure. The inclosure of a trench or canal. Dig. 43. 21, 4.

5e apparatus — Not carried into the 5th edition (1979).

## SEPTENNIAL ACT.

In English law. The statute 1 Geo. I. St. 2, c. 38. The act by which a parliament has continuance for seven years, and no longer, unless sooner dissolved; as it always has, in fact, been since the passing of the act. Wharton.

Bl.Law Dict.(2d Ed.)— 68

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Septennial Act 1715, 1 Geo. I St. 2 c. 38]**

The Septennial Act 1715 gave parliament continuance for seven years.

Why: Genuine statute; the entry names it and states its effect.

## SEPTUAGESIMA.

In ecclesiastical law. The third Sunday before Quadragesima Sun- day, being about the seventieth day before Easter.

5e apparatus — Not carried into the 5th edition (1979).

## SEPTUM.

Lat. In Roman law. An in- closure; an inclosed place where the people voted; otherwise called "ovile."

Im old English law. An inclosure or .close. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SEPTUNX.

Lat. In Roman law. A di- vision of the as, containing seven uncke, or duodecimal parts; the proportion of seven- twelfths. Tayl. Civil Law, 492.

5e apparatus — Not carried into the 5th edition (1979).

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## SEPULCHRE.

A grave or tomb. The place of Interment of a dead human body. The violation of sepulchres Is a misdemean- or at common law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: violation of sepulchre — common-law misdemeanor]**

Violation of sepulchres is a misdemeanor at common law.

Why: Genuine common-law offense; the entry states the rule and the footnote names it.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Louis Stevenson, "The Body Snatcher", 1884]**

(paraphrase) The tale of resurrection men who rob graves to supply anatomists — the very 'violation of sepulchres' the entry names as a misdemeanor at common law. (paraphrase)

Why: The story's crime is exactly the entry's offense; genuinely illuminating. Certain work/author/year; marked paraphrase.

## SEPULTURA.

Lat An offering to the priest for the burial of a dead body.

Sequamur vestigia patrum noitromnl.

Jenk. Cent. Let us follow the footsteps of our fathers.

5e apparatus — Not carried into the 5th edition (1979).

## SEQUATUR SUB SUO PERICULO.

In

old English practice. A writ which issued where a sheriff had returned nihil, upon a summoneas ad warrantizandum, and after an alias and pluries had been issued. So called because the tenant lost his lands without any recovery in value, unless upon that writ he brought the vouchee into court. Rose. Real Act. 26S; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SEQUELA.

L. Lat. In old English law. Suit ; process or prosecution. Sequela causa:, the process of a cause. Cowell.

—Sequela curiae. Suit of court. Cowell.— Sequela vlllanorum. The family retinue and appurtenances to the goods and chattels of villeins, which were at the absolute disposal of the lord. Par. Antiq. 216. .

5e apparatus — Not carried into the 5th edition (1979).

## SEQUELS.

Small allowances of meal, ot manufactured victual, made to the servants at a mill where corn was ground, by tenure, in Scotland. Wharton.

SEQUESTER, v. In the civil law. To

renounce or disclaim, etc. As when a wid- ow came into court and disclaimed having

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anything to do with her deceased husband’s estate, she was said to sequester. The word more commonly signifies the act of taking in execution under a writ of sequestration. Brown.

To deposit a thing which is the subject of a controversy in the hands of a third person, to hold for the contending parties.

To take a thing which is the subject of a controversy out of the possession of the con- tending parties, and deposit It In the hands of a third person. Calvin.

Iu equity practice. To take possession of the property of a defendant, and hold U

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in the custody of the court, until he purges himself of a contempt

In English ecclesiastical practice. To gather and take care of the fruits and profits of a vacant benefice, for the benefit of the next incumbent

In international law. To confiscate ; to appropriate private property to public use; to seize the property of the private citizens of a hostile power, as when a belligerent na- tion sequesters debts due from its own sub- jects to the enemy. See 1 Kent Comm. 62.

SEQUESTER, n. Lat In the civil law. A person with whom two or more contend- ing parties deposited the subject-matter of the controversy.

5e apparatus — Not carried into the 5th edition (1979).

## SEQUESTRARI FACIAS.

In English ecclesiastical practice. A process in the na- ture of a levari facias, commanding the bish- op to enter into the rectory and parish church, and to take and sequester the same, and hold them until, of the rents, tithes, and profits thereof, and of the other ecclesiastical goods of a defendant, be have levied the plaintiff’s debt 3 Bl. Comm. 418; 2 Archb. Pr. 1284.

5e apparatus — Not carried into the 5th edition (1979).

## SEQUESTRATIO.

Lat In the civil law. The separating or setting aside of a thing in controversy, from the possession of both par- ties that contend for it It is tworfold, — voluntary, done by consent of all parties; and necessary, when a judge orders it Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SEQUESTRATION.

In equity prac- tice. a writ authorizing the taking into the custody of the law of the real and personal estate (or rents, issues, and profits) of a de- fendant who is in contempt, and holding the same until he shall comply. It Is sometimes directed to the sheriff, but more commonly to four commissioners nominated by the com- plainant. 3 Bl. Comm. 444; Ryan v. Kings- bery, 88 Ga. 361, 14 S. E. 596.

In Louisians. A mandate of the court, ordering the sheriff, in certain cases, to take in his possession, and to keep, a thing of which another person has the possession, un- til after

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the decision of a suit, in order that it be delivered to him who shall he adjudged entitled to have the property or possession of that thing. This Is what is properly call- ed a “judicial sequestration.’’ Code Prac. La. art 269; American Nat. Bank v. Childs, 49 La. Ann. 1359, 22 South. 384.

In contracts. A species of deposit which two or more persons, engaged in litigation about anything, make of the thing in contest with an indifferent person who binds himself to restore it, when the issue is decided, to the party to whom it is adjudged to belong. Civ. Code La. art 2973.

In English ecclesiastical law. The net

of the ordinary in disposing of the goods and

chattels of one deceased, whose estate no one will meddle with. Cowell. Or, in other words, the taking possession of the property of a deceased person, where there is no one to claim it

Also, where a benefice becomes vacant, a sequestration is usually granted by the bish- op to the church-wardens, who manage all the profits and expenses of the benefice, plow and sow the glebe, receive tithes, and provide for the necessary cure of souls. Sweet.

In international law. The seizure of the property of an individual, and the appropria- tion of it to the use of the government.

Mayor’s court. In the mayor’s court of London, “a sequestration is an attachment of the property of a person in a warehouse or other place belonging to and abandoned by him. It has the same object as the ordinary attachment, viz., to compel the appearance of the defendant to an action,” and, in de- fault, to satisfy the plaintiff’s debt by ap- praisement and execution.

—Judicial sequestration. In Louisiana, a mandate ordering the sheriff in certain cases to take into his possession and to keep a thing of which another person has the possession un- til after the decision of a suit in order that it may be delivered to him who shall be adjudged to have the property or possession of it. Bald- win v. Black, 119 U. S. 643, 7 Sup. Ct. 326, 30 Ll Ed. 530.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: sequestration — equity's process against a contemnor]**

Sequestration takes the contemnor's estate into custody of the law until he purges his contempt.

Why: Genuine equity doctrine; the entry defines the writ against a defendant in contempt (3 Bl. Comm. 444).

## SEQUESTRATOR.

One to whom a seq- uestration is made. One appointed or chosen to perform a sequestration, or execute a writ of sequestration.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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## SEQUESTRO  HABENDO.

In English ecclesiastical law. A judicial writ for the discharging a sequestration of the profits of a church benefice, granted by the bishop at the sovereign's command, thereby to com- pel the parson to appear at the suit of an- other. Upon his appearance, the parson may have this writ for the release of the seques- tration. Reg. Jud. 36.

Sequi delict potent!* justitlam non praecedere. 2 Inst. 454. Power should fol- low Justice, not precede It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SERF.

In the feudal polity, the serfs were a class of persons whose social con- dition was servile, and who were bound to labor and onerous duties at the will of their lords. They differed from slaves only in that they were bound to their native soil, in- stead of being the absolute property of a master.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 3:28, KJV]**

There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female: for ye are all one in Christ Jesus.

Why: The entry defines the serf as one whose social condition was servile, bound to labour at his lord's will — differing from the slave only in being bound to the soil. The verse dissolves the bond/free distinction itself...

**[Humanity] — Humanity / Fiction & Film**

**[Nikolai Gogol, Dead Souls, 1842]**

(paraphrase) Chichikov's scheme to buy dead serfs turns on the serf as countable property bound to the estate — the novel's image of the servile condition the entry defines. (paraphrase)

Why: The canonical literary treatment of serfdom; genuinely illuminates the human reality behind the definition. Certain work/author/year; marked paraphrase.

## SERGEANT.

In military law. A non- commissioned officer, of whom there are sev- eral in each company of Infantry, troop of cavalry, etc. The term is also used in the organization of a municipal police force.

— Sergeant at arms. See Skbjeant. — Ser- geant at law. See Serjeant. — Town ser- geant. In several states, an officer having the powers and duties of a chief constable or head of the police department of a town or village.

5e apparatus — Carried into the 5th edition (1979).

## SERIATIM.

Lat Severally; separately; individually; one by one.

5e apparatus — Not carried into the 5th edition (1979).

## SERIOUS.

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Important; weighty ; moment- ous, and not trifling; as in the phrases “seri- ous bodily harm," “serious personal injury," etc. Lawlor v. People, 74 111. 231; Union Mut. L. Ins. Co. v. Wilkinson, 13 Wall. 230, 20 L. Ed. 617.

5e apparatus — Carried into the 5th edition (1979).

## SERJEANT.

The same word etymologic- ally with “sergeant,” but the latter spelling Is more commonly employed In the designa- tion of military and police officers, (see Seh- geant,) while the former Is preferred when the term Is used to describe certain grades of legal practitioners and certain officers of legislative bodies. See infra.

— Common Serjeant. A judicial officer at- tached to the corporation of the city of London, who assists the recorder in disposing of the criminal business at the Old Bailey sessions, or central criminal court. Brown.— Serjeant at arms. An executive officer appointed by, and attending on, a legislative body, whose prin- cipal duties are to execute its warrants, pre- serve order, and arrest offenders.— Serjeant at law. A barrister of the common-law courts of high standing, and of much the same rank as a doctor of law is in the ecclesiastical courts. These serjeants seem to have derived their title from the old knights templar, (among whom there existed a peculiar class under the denomination of “friret serge a*,’’ or "fratres servientes") and to have continued as a separ- ate fraternity from a very early period in the history of the legal profession. The barristers who first assumed the old monastic title were those who practiced In the court of common pleas, and until a recent period (the 25th of April, 1834, 9 ft 10 Viet. c. 54) the serjeants at law always had the exclusive privilege of practice in that court. Every judge of a com- mon-law court, previous to his elevation to the bench, used to be created a serjeant at law; but since the judicature act this Is no longer necessary. Brown.— Serjeant of the mace. In English law. An officer who attends the lord mayor of London, and the chief magistrates of other corporate towns. Holrhouse.— Serjeants’ Ian. The inn to which the serjeants at law belonged, near Chancery lane ; formerly called “Faryndon Inn.”

Serjeantia idem est quod servitium.

Co. Lltt 105. Serjeanty Is the same as serv- ice.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Serjeants-at-law — the ancient order of barristers]**

Serjeants-at-law were the ancient select order of English barristers, alone admitted to plead in Common Pleas.

Why: Genuine legal-historical institution; the entry distinguishes the legal grades of serjeant.

## SERJEANT Y.

A species of tenure by knight service, which was due to the king only, and was distinguished into grand and petit serjeanty. The tenant bolding by grand serjeanty was bound, instead of attending the king generally In his wars, to do some honorary service to

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the king in person, as to carry his banner or sword, or to be his but- ler, champion, or other officer at his corona- tion. Petit serjeanty differed from grand serjeanty, in that the service rendered to the king was not of a personal nature, but con- sisted in rendering him annually some small implement of war, as a bow, sword, arrow, lance, or the like. Cowell; Brown.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute of Tenures 1660, 12 Car. II c. 24 — abolition of serjeanty]**

Tenure by serjeanty — honorary personal service to the king — fell with the military tenures in 1660.

Why: Genuine statute; the entry defines grand and petit serjeanty, and the footnote gives their abolition.

## SEKXENT.

In old English law. Oath; an oath.

Sarmo lades salmi. 5 Coke, 118. Speech is an index of the mind.

Sermo relatua ad personam latelllgl dobet de eoaditloae personae. Language which is referred to a person ought to be un- derstood of the condition of the person. 4 Coke, 16.

Sermoaes semper . acoiplendl sunt se- osadnm subjectam materiam, et condi- tionem persoaarnm. 4 Coke, 14. Lan- guage is always to be understood according to its subject-matter, and the condition of the persons.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Sermones semper accipiendi sunt secundum subjectam materiam — 4 Co. 14]**

Sermones semper accipiendi sunt secundum subjectam materiam — language is always understood according to its subject matter.

Why: Real maxim quoted in-entry (4 Coke, 14); it genuinely states the contextual-interpretation rule. Headword copied as OCR'd.

## SERPENT- VENOM  REACTION.

A test for Insanity by means of the breaking up of the red corpuscles of the blood of the sus- pected person on the injection of the venom of cobras or other serpents; recently employed in judicial proceedings In some European countries and In Japan.

5e apparatus — Not carried into the 5th edition (1979).

## SERRATED.

Notched on the edge; cut In notches like the teeth of a saw. This was anciently the method of trimming the top or edge of a deed of indenture. See In debt, v.

SERVAOE, in feudal law, was where a- tenant, besides payment of a certain rent, found one or more workmen for his lord’s service. Tomlins.

Servanda est consuetude loci nbi causa agitur. The custom of the place where the action is brought is to be observed. De- couche v. Savetier, 3 Johns. Ch. (N. Y.) 190, 219, 8 Am. Dec. 478.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: indenture — deed indented vs. deed poll]**

A deed indented — cut in notches — is an indenture, distinguished from a deed poll cut straight.

Why: Genuine conveyancing distinction; the entry describes indenture-trimming and the footnote names the doctrine.

## SERVANT.

A servant is one who is em- ployed to render personal services to his employer, otherwise than in the pursuit of an independent calling, and who in such service remains entirely under the control and direction of the latter, who is called his master. Civ. Code Cal. { 2009.

Servants or domestics are those who re- ceive wages, and stay in the house of the person paying and employing them for his services or that of his family ; such are val- ets, footmen, cooks, butlers, and others who. reside in the house. Civ. Code La. art. 3205.

Free servants are in general all free per- sons who let, hire, or engage their services to another In the state, to be employed there- in at any work, commerce, or occupation whatever for the benefit of him who has con- tracted with them, for a certain price or retribution, or upon certain conditions. Civ. Code La. art. 163.

Servants are of two kinds, — menial serv- ants, being persons retained by others to live within the walls of the house, and to per- form the work and business of the house- hold; and persons employed by men of trades and professions under them, to assist them in their particular callings. Moaley ft Whit- ley. See, also, Flesh v. Lindsay, 115 Mo. 1,

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21 8. W. 907, 87 Am. St Rep. 374 ; Murray v. Dwight, 161 N. X. 301, 55 N. B. 901, 48

L. R. A. 673; Ginter v. Shelton, 102 Va. 185, 45 S. E. 892 ; Powers v. Massachusetts Hom- oeopathic Hospital, 109 Fed. 294, 47 C. C. A. 122, 65 L. R. A. 372; Campfleld V. Dang, (C. C.) 25 Fed. 131; Frank v. Herold, 63

N. J. Eq. 443, 52 Atl. 152; Morgan ▼. Bow- man, 22 Mo. 548; Gravatt v. State, 25 Ohio

SC. 167; Hand v. Cole, 88 Tenn. 400, 12

S. W. 922, 7 L. R. A. 96.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Respondeat superior]**

Respondeat superior — the master answers for the servant's acts within the employment.

Why: Real maxim genuinely illuminating the master-servant relation the entry defines by control and direction.

**[Scripture] — Scripture**

**[Ephesians 6:5, KJV]**

Servants, be obedient to them that are your masters according to the flesh, with fear and trembling, in singleness of your heart, as unto Christ.

Why: The entry defines the servant as one employed to render personal service under his master's control and direction. The verse states the scriptural rule of that relation: servants obedient to their masters, in singlene...

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## SERVE.

In Scotch practice. To render a verdict or decision In favor of a person claiming to be an heir; to declare the fact of his heirship judicially. A jury are said to serve a claimant heir, when they find him to be heir, upon the evidence submitted to them. Bell.

As to serving papers, etc., see Service or Process.

5e apparatus — Not carried into the 5th edition (1979).

## SEE VI.

Lat In old European law.

Slaves; persons over whom their masters bad absolute dominion

In old English law. Bondmen; servile tenants. Cowell.

8ERVI REDEMPTIONS. Criminal Slaves in the time of Henry I. 1 Kemble, Sax. 197, (1849.)

5e apparatus — Not carried into the 5th edition (1979).

## SERVICE.

In eontraote. The being' em- ployed to serve another; duty or labor to be rendered by one person to another.

The term ,1s used also for employment In one of the offices, departments, or agencies of the government; as in the phrases “civil service,’’ “public service,’’ etc. '

In feudal law. Service was the consid- eration which the feudal tenants were bound to render to the lord in recompense for the lands they held of him. The services, in re- spect of their quality, were either free or base services, and, in respect of their quan- tity and the time of exacting them, were ei- ther certain or uncertain. 2 Bl. Comm. 60.

In practice. The exhibition or delivery of a writ, notice, Injunction, etc., by an author- ised person, to a person who is thereby offi- cially notified of some action or proceeding In which he Is concerned, and is thereby advis- ed or warned of some action or step which he is commanded to take or to forbear. See Walker v. State, 52 Ala. 193; U. S. v. Mc- Mahon, 164 U. S. 81, 17 Sup. Ct. 28, 41 L. Ed. 357; Sanford v. Dick, 17 Conn. 213.; Cross v. Barber, 16 R. I. 266, 15 Atl. 69.

— Civil service. See that title. — Construc- tive service of process. Any form of service other than actual personal service; notification of an action or of some proceeding therein, given to a person affected by sending it to him in the mails or causing it to be published in a newspaper. — Personal service. Personal serv- ice of a writ or notice is made by delivering it to the person named, in person, or handing .him a copy and informing him of the nature

and terms of the original. Leaving a copy at his place of abode is not personal service. Moyer v. Cook, 12 Wis. 336. — Salvage serv- ice. See Salvage.-- Secular service. World- ly employment or service, as contrasted with spiritual or ecclesiastical.— Service by publi- cation. Service of a summons or other process upon an absent or non-resident defendant, by publishing the same as an advertisement in a designated newspaper, with such other efforts to give him actual notice as the particular statute may prescribe.— Service of an

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heir. An old form of Scotch law, fixing the right and character of an heir to the estate of nis an- cestor. Bell.— Service of process. The serv- ice of writs, summonses, rules, etc., signifies the delivering to or leaving them with the

nto whom or with whom they ought to •livered or left; and, when they are so delivered, they are then said to have been served. Usually a copy only is served and the original is shown. Brown.— Special service. In Scotch law. That form of service by which the heir is served to the ancestor who was feudally vested in the lands. Bell.— Substi- tuted service. This term generally denotes any form of service of process other than per- sonal service, such as service by mail or by publication in a newspaper; but it is sometimes employed to denote service of a writ or notice on some person other than the one directly concerned, for example, his attorney of record, who has authority to represent him or to accept service for him.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Ephesians 6:7, KJV]**

With good will doing service, as to the Lord, and not to men:

Why: The entry defines service as duty or labour rendered by one person to another. The verse names it directly — 'doing service' — and sets its standard: with good will, as to the Lord, and not to men.

## SERVICES FONOIERS.

Fr. These are, in French law, the easements of English law. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SERVED UMB RE.

In Spanish law. ▲ servitude. The right and use which one man has in the buildings and estates of an- other, to use them for the benefit of his own. Las Partidas, 3, 31, 1.

: 8 ER VEENS AD OLAVAM. . Serjeant at -mace. 2 Mod. 58.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Las Partidas — Spanish law of servitudes]**

A servidumbre under Las Partidas is the Spanish-law servitude — the right one man has in another's estate for his own benefit.

Why: The entry cites Las Partidas 3,31,1; the footnote names the genuine code grounding the definition.

## SERV1ENS AD LEGEM.

In old Eng- lish practice. Serjeant at law.

’ SERVIENS DOMINI REGIS. In ol£

English law. King’s serjeaut; a public of- ficer, who acted sometimes as the sheriffs deputy, and bad also judicial powers. Bract fols. 145b, 150b, 330, 358.

5e apparatus — Not carried into the 5th edition (1979).

## SERVIENT.

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Serving; subject to a serv- ice or servitude. A servient estate is one which is burdened with a servitude.

—Servient tenement. An estate in respect of which a service is owing, as the dominant tenement is that to which the service is due.

Servile est expilationii crimen; aoln innocent!* libers. 2 Inst. 573. The crime of theft is slavish; innocence alone is free.

Servitis personalis sequuntur personsm. 2 Inst 374; Personal services follow the person.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: dominant and servient tenements — easement structure]**

Every easement has a servient tenement burdened and a dominant tenement benefited.

Why: Genuine property structure; the entry defines the servient tenement and the footnote states the correlative pair.

## SER VITIIS ACQUIETANDIS.

A Judi- cial writ for a man distrained for services to oue, when he owes and performs them to

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another, for the acquittal of such services. Reg. Jud. 27.

5e apparatus — Not carried into the 5th edition (1979).

## SERVIT1UM.

Lat. In feudal and old English law. The duty of obedience and per- formance which a tenant was bound to ren- der to his lord, by reason of bis fee. Spel- man.

— Serritinm feodale et yradlale. A per- sonal service, but due only by reason of lands which were held in fee. Bract. 1. 2, c. 16.— Serritlmn forinsecum- Forinsec, foreign, or extra service ; a kind of service that was due to the king, over and above ( foris ) the service due to the lord. — Serrltlmn intrln- secnm. Intrinsic or ordinary service ; the or- dinary service due the chief lord, from tenants within the fee. Bract, fols. 36, 366. — 8ervi- tinm liberum. A service to be done by feudatory tenants, who were called “tiberi homines , and distinguished from vassals, as was their service, for they were not bound to any of the base services of plowing the lord’s land, etc., but were to find a man and horse, or go with the lord into the army, or to attend the court, etc. Cowell. — Serritinm militare. Knight-service; military service. 2 Bl. Comm. 62. — Serritinm regale. Royal service, or the rights and prerogatives of man- ors which belong to the king as lord of the same, and which were generally reckoned to be six, via.: Power of judicature, in matters of property ; power of life and death, in felonies ana murder; a right to waifs and strays; as- sessments ; minting of money ; and assise of bread, beer, weights, and measures. Cowell.— Serritinm sent!. Service of the shield ; that is, knight-service.— Serritinm sokae. Service of the plow ; that is, socage.

Serritinm, in lege Angllsa, re gnl writer aocipitur pro serritio quod per tenentea dominis snis

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debetur rntione feodi sui.

Co. Lltt 65. Service, by the law of Eng- land, means the service which Is due from the tenants to the lords, by reason of their fee.

5e apparatus — Not carried into the 5th edition (1979).

## SERVITOR.

A serving-man; particular- ly applied to students at Oxford, upon the foundation, who are similar to sizars at Cam- bridge. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SERVITORS OF BILLS.

In old Eng- lish practice. Servants or messengers of the marshal of the king s bench, sent out with bills or writs to summon persons to that court Now more commonly called “tip-staves.” Cowell.

SERVITUDE. 1. The condition of be- ing bound to service ; the state of a person who is subjected, voluntarily or otherwise, to another person as his servant

— Involuntary servitude. See Involun- tary .—Penal servitude. In English criminal law, a punishment which consists in keeping the offender, in confinement and compelling him to labor.

2. A charge or burden resting upon one estate for the benefit or advantage of an- other ; a species of Incorporeal right derived from the civil law (see Servitus) and closely •corresponding to the “easement” of the com- mon-law, except that “servitude” rather has

relation to the burden or the estate burden- ed, while “easement” refers to the benefit or advantage or the estate to which it ac- crues. See Neills v. Munson, 24 Hun (N. Y.) 576 ; Rowe v. NaUy, 81 Md. 367, 32 Atl. 198 ; Los Angeles Terminal Land Co. v. Muir, 136 Cal. 36, 68 Pac. 308; Launder v. Francis, 23 Mo. 184; Rltger v. Parker, 8 Cush. (Mass.) 145, 54 Am. Dec. 744; Kief- fer v. Imhoff, 26 Pa. 438.

The term “servitude,” in its original and popular sense, signifies the duty of service, or rather the condition of one who is liable to the performance of services. The word, how- ever, in its legal sense, is applied figuratively to. things. When the freedom of ownership in land is fettered or restricted, by reason of some person, other than the owner thereof, having some right therein, the land is said to “serve” such person. The restricted condi- tion of the ownership or the ripht which forms the subject-matter of the restriction is termed a "servitude.” and the land so burdened with another’s right is termed a “servient tenement,” while the land belonging to the person enjoying the right is called the “dominant tenement.” The word "servitude” may be said to have both a positive and a negative signification ; in the former sense denoting the restrictive right be- longing to .the entitled party ; in the latter, the restrictive duty entailed upon the proprietor or possessor of the servient land. Brown.

Classification. All servitudes which af- fect lands may be divided into two kinds, — personal and real. Personal servitudes are those attached to the person for whose benefit they are

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established, and terminate with his life. This kind of servitude is of three sorts, — usufruct, use, and habitation. Real servitudes, which are also called “pred- ial” or “landed” servitudes, are those which the owner of an estate enjoys on a neigh- boring estate for the benefit of his own es- tate. They are called “predial” or "land- ed” servitudes because, being established for the benefit of an estate, they are rather due to the estate than to the owner personally. Civ. Code La. art. 646.

Real servitudes are divided, In .the civil law, into rural and urban servitudes. Rural servitudes are such as are established for the benefit of a lnnded estate ; such, for ex- ample, as a right of way over the servient tenement, or of access to a spring, a coal- mine, a sand-pit, or a wood that is upon It. Urban servitudes are such as are established for the benefit of one building over another. (But the buildings need not be in the city, as the name would apparently imply.) They are such as the right of supiwrt, or of view, or of drip or sewer, or the like. See Mackeld. Rom. Law, $ 316, et seq.

Servitudes are also classed as positive and negative. A positive servitude is one which obliges the owner of the servient estate to permit or suffer something to be done on his pro;>erty by another. A negative servitude Is one which does not bind the servient pro- prietor to permit something to be done upon his property by another, but merely restrains him from making a certain use of his prop- erty which would impair the easement en-

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joyed by the dominant tenement See Rowe v. Nally, 81 Md. 367, 32 AU. 198.

5e apparatus — Not carried into the 5th edition (1979).

## SER VITUS.

Lat In the civil law. Slavery ; bondage ; the state of service. De- fined as “an Institution of the conventional law of nations, by which one person is sub- jected to the dominion of another, contrary to natural right” Inst 1, 3, 2.

Also a service or servitude; an easement

— Serrltns actus. The servitude or right of walking, riding, or driving over another’s ground. Inst. 2, 3, pr. A species of right of way. — Serrltns alttus non tollendl. The servitude of not building higher. A right at- tached to a house, by which its proprietor can revent his neighbor from building his dwn ouse higher. Inst. 2, 3, 4.— Serrltns anna dnoendse. The servitude of leading water; the right of leading water to one’s own prem- ises through another's land. Inst. 2, 3, pr. —Serrltns aquas edncendse. The servitude of leading off water; the right of leading off the water from one’s own onto another's ground. Dig. 8, 3, 29.— Serrltns aqna hanriendss. The servitude or right of draining water from another’s spring or well. Inst. 2, 3, 2.— Serrltns eloacao mittendse. The servitude or right of having a sewer through the house or ground of one’s neighbor. Dig. 8, 1, 7.— Serrltns fatal lmmittendi. The servitude or right of leading off smoke or vapor through the chimney or over the ground of one's neigh- bor. Dig. 8, 5, 8, 5-7.— Serrltns ltlnerls. The servitude or

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privilege of walking, riding, and being carried over another’s ground. Inst. 2, 3, pr. A species of right of way.— Serrltns lutninunt. The servitude of lights; the right of making or having windows or other openings in a wall belonging to another, or in a common wall, in order to obtain light for one's building. Dig. 8, 2, 4.— Serrltns ne Inmlnlbns offi- eistnr. A servitude not to hinder lights; the right of having one's lights or windows unob- structed or darkened by a neighbor’s building, etc. Inst. 2, 3, 4.— Serrltns ne prospectus offendator. A servitude not to obstruct one’s prospect, i. not to intercept the view from one's bouse. Dig. 8, 2, 15.— Serrltns onerls ferendl. The servitude of bearing weight ; the right to let one’s building rest upon the building, wall, or pillars of one's neighbor. Macketd. Rom. Law, | 317.— Serrltns paa- cendi. The servitude of pasturing; the right of pasturing one’s cattle on another’s ground ; otherwise called “jut patcendi." Inst. 2, 3, 2. —Serrltns peoorls ad aqnam adpnlsam. A right of driving one's cattle on a neighbor’s land to water. — Serrltns prsedii rastlcl. The servitude of a rural or country estate ; a rural servitude. Inst. 2, 3, pr., and 3.— Serrl- tns prssdll nrbanl. The servitude of an urban or city estate ; an urbah servitude. Inst. 2. 3. 1.— Serrltns prsediorum. A praedial servitude ; a service, burden, or charge upon one estate for the benefit of another. Inst. 2, 3, 3.— Serrltns projidendl. The servi- tude of projecting : the right of building a projection from one’s house in the open space belonging to one’s neighbor. Dig. 8, 2, 2.— Serrltns prospectus. A right of prospect. This may be either to give one a free prospect over his neighbor’s land or to prevent a neigh- bor from having a prospect over one’s own land. Dig. 8, 2. 15 ; Domat, 1, 1, 6.— Serrltns stlUlcldU. The right of drip ; the right of having the water drip from the eaves of one’s house upon the house or ground of one's neigh- bor. Inst. 2, 3, 1. 4 ; Dig. 8. 2. 2.— Serrltns tlgnl lmmittendi. The servitude of letting in a beam ; the right of inserting beams in a neighbor’s wall. Inst. 2, 3, 1. 4 ; Dig. 8, 2. 2. —Serrltns vise. The- servitude or right of way ; the right of walking, riding, and driving over another’s land. Inst. 2, 3, pr.

Serrltns est constltntio jure gentium qu quls domino nlicno contra natnram rabjldtur. Slavery is an institution by the law of nations, by which a man is subjected to the dominion of another, contrary to na- ture. Inst 1, 3, 2 ; Co. Lltt 116.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SERVU8.

Lat In the civil and old English law. A slave; a bondman. Inst 1, 8, pr. ; Bract foL 4b.

5e apparatus — Not carried into the 5th edition (1979).

## SEES.

In English law. A tax, rate, or assessment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SESSIO.

Lat In old English law. A sitting; a session. Settio parliaments the Bitting of parliament

CowelL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SESSION.

The sitting of a court legis- lature, council, commission, etc., for the transaction of its proper business. Hence, the period of time, within any one day, dur- ing which such body is assembled In form, and engaged in the transaction of business, or, in a more extended sense, the whole space of time from Its first assembling to its pro- rogation or adjournment tine die.

Synonyms. Strictly speaking, the word “session,” as applied to a court of justice, is not synonymous with the word “term.” The “session" of a court is the time during which It actually sits for the transaction of judicial business, and hence terminates each day with the rising of the court. A “term” of court is the period fixed by law, usually embracing many days or weeks, during which it shall be open for the transaction of judicial business and during which it may bold sessions from day to day. But this distinction is not always observed, many authorities using the two words interchangeably. See Lipari v. State, 19 Tex. App. 433; Stefani v. State, 124 Ind. 3. 24

N. E. 254 ; Mansfield v. Mutual Ben. L. Ins. Co., 63 Conn. 579. 29 Atl. 137 ; Heim v. B ram- mer, 145 Ind. 605, 44 N. E. 638 ; Cresap v. Cresap, 54 W. Va. 581. 46 S. E. 582; D. & v. Dietrich (C. C.) 126 Fed. 660.

— Court of session. The supreme civil court of Scotland, instituted A. D. 1532, consisting of thirteen (formerly fifteen) judges, via., the lord president, the lord justice clerk, and eleven ordinary lords, — General sessions. A court of record, in England, held by two or more justices of the peace, for the execution of the authority given them by the commission of the peace and certain statutes. General ses- sions held at certain times in the four quar- ters of the year pursuant to St. 2 Hen. V. are properly called “quarter sessions,” (q. t>„) but intermediate general sessions may also be held. Sweet.— Great session of Wales. A court which was abolished by St. 1 Wm. IV. c. 70. The proceedings now Issue out of the courts at Westminster, and Swo of the judges of the superior courts hold the circuits in Wales and Cheshire, as in other English counties. Whar- ton.—Joint session. In parliamentary prac- tice, a meeting together and commingling of the two bouees of a legislative body, sitting and acting together as one body, instead of separately in their respective houses. Snow v. Hudson, 56 Kan. 378. 43 Pac. 262.— Potty sessions. In English law. A special or petty session is sometimes kept in corporations and counties at large by a few justices, for dis- patching smaller business in the neighborhood between the times of the general sessions ; as for licensing alehouses, passing the accounts of the parish officers, e(c. Brown. — Qmsu-ter sessions. See that title. — Regular session. An ordinary, general, or stated session; (as of

a legislative body,) as distinguished from a special or extra session. — Session lavra. The name commonly given to the body of lawa en- acted by a state legislature at one of its an-

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nual or biennial sessions. So called to dis- tinguish them from the “compiled laws” or “revised statutes” of the state.— Session of tits pesos, in English law, is a sitting of justices of the peace for the exercise of their powers. There are four kinds— petty, special,

Suarter, and general sessions.— -Sessional ox- ers. Certain resolutions which are agreed to by both houses at the commencement of every session of the English parliament, and have relation to the business and convenience there- of; but they are not intended to continue in force beyond the session in which they are adopted. They are principally of use as di- recting the order of business. Brown. — Ses- sions. A sitting of justices In court upon their commission, or by virtue of their appoint- ment, and most commonly for the trial of criminal cases. The title of several courts in England and the United States, chiefly those of criminal jurisdiction. Burrill. — Special ses- sions. In English law. A meeting of two or more justices of the peace held for a special purpose, (such as the licensing of alehouses,) either as required by statute or when specially convoked, which can only be convened after notice to all the other magistrates of the divi- sion, to give them an opportunity of attending. Stone, J. fir. 52, 55.

5e apparatus — Carried into the 5th edition (1979).

## SET.

anls word appears to be nearly synonymous with “lease.” A lease of mines Is frequently termed a “mining set” Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SET ASIDE.

To set aside a judgment, decree, award, or any proceedings is to can- cel, annul, or revoke them at the instance of a party unjustly or irregularly affected by them. State r. Primm, 61 Mo. 171; Brandt v. Brandt, 40 Or. 477, 67 Pac. 508.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 60 — relief from judgment]**

A judgment procured irregularly may be vacated on motion for relief from the judgment.

Why: Genuine procedural remedy; the entry defines setting aside as cancelling judgments at the instance of the party unjustly affected.

## SET DOWN.

To set down a cause for trial or hearing at a given term is to enter Its title in the calendar, list, or docket of causes which are to be brought on at that term.

5e apparatus — Carried into the 5th edition (1979).

## SET OF EXCHANGE.

In mercantile law. Foreign bills are usually drawn in duplicate or triplicate, the several parts be- ing called respectively “first of exchange," “second of exchange,” etc., and these parts together constitute a “set of exchange." Any one of them being paid, the others become

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void.

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**[Law] — Law**

**[Law: bills of exchange drawn in sets — law merchant]**

Foreign bills drawn in duplicate or triplicate sets are governed by the law merchant of bills of exchange.

Why: Genuine mercantile practice; the entry defines the set and the footnote names the governing law.

## SET-OFF.

A counter-claim or cross-de- mand ; a claim or demand which the defend- ant in an action sets off against the claim of the plaintiff, as being his due, whereby he may extinguish the plaintiff’s demand, either in whole or in part, according to the amount of the set-off. See In re Globe Ins. Co., 2 Edw. Ch. (N. Y.) 627; Sherman v. Hale, 76 Iowa, 383, 41 N. W. 48 ; Naylor v. Smith, 63 N. J. Law, 596, 44 AO. 649; Hurdle y. Hanner, 50 N. C. 360; Wills v. Browning, 96 Ind. 149.

Set-off is a defense which goes not to the Justice of the plaintiff’s demand, but sets up

a demand against the plaintiff to counter- balance bis in whole or in part Code Ga. 1882, i 2899.

For the distinction between set-off and re- coupment, see Recoupment.

“Set-off” differs from a “lien," inasmuch as the former belongs exclusively to the remedy, and is merely a right to insist, if the party think proper to do so, when sued by his creditor on a counter-demand, which can only be en- forced through the medium of judicial proceed- ings; while the latter is, in effect, a substitute for a suit 2 Op. Attys. Gen. 677.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 11 U.S.C. § 553 — setoff in bankruptcy]**

In bankruptcy, mutual debts are set off against each other under the Bankruptcy Code.

Why: Genuine statute; the entry defines set-off as the defendant's cross-demand extinguishing the plaintiff's.

## SET OUT.

In pleading. To recite or narrate facts or circumstances ; to allege or aver; to describe or to Incorporate; as, to set out a deed or contract First Nat Bank v. Engelbercht, 58 Neb. 639, 79 N. W. 556;

U. a v. Watkins, 28 Fed. Cas. 436.

5e apparatus — Carried into the 5th edition (1979).

## SET UP.

To bring forward or allege, as something relied upon or deemed sufficient; to propose or interpose, by way of defense, explanation, or justification; as, to set up the statute of limitations, ». e., offer and rely upon it as a defense to a claim.

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 8(c) — statute of limitations as affirmative defense]**

The statute of limitations must be pleaded as an affirmative defense — 'set up' — or it is waived.

Why: Genuine pleading rule; the entry's own example is setting up limitations as a defense.

## SETTER.

In Scotch law. The granter of a tack or lease. 1 Forb. Inst pt 2, p. 153.

5e apparatus — Not carried into the 5th edition (1979).

## SETTEE.

To adjust, ascertain, or liqui- date; to pay. Parties are said to settle an account when they go over its items and as- certain and agree upon the balance due from one to the other. And, when the party in- debted pays such balance, he Is also said to settle it Auzerals v. Naglee, 74 Cal. 60, 15 Pac. 371; Jackson v. Ely, 57 Ohio St. 450, 49 N. E. 792 ; People v. Green, 5 Daly (N. Y.) 201 ; Lynch v. Nugent 80 Iowa, 422, 46 N. W. 61.

To settle property Is to limit it, or the in- come of it to several persons in succession, so that the person for the time being in the possession or enjoyment of it has no power to deprive the others of their right of future enjoyment Sweet

To settle a document is to make it right in form and in substance. Documents of diffi- culty or complexity, such as mining leases, settlements by will or deed, partnership agreements, etc., are generally settled by counsel. Id.

The term “settle” is also applied to pau- pers.

Settle up. A term, colloquial rather than legal, which is applied to the final collection, adjustment, and distribution of the estate of a decedent, a bankrupt, or an insolvent corpora-- tion. It includes the processes of collecting the property, paying debts and charges, and turning over the balance to those entitled to receive it. —Settled estate. See Estate.— Settling a bill of exceptions. When the bill of excep- tions prepared for an appeal is not accepted as correct by the respondent, it is settled (t. e., ad- justed and finally made conformable to the truth) by being taken before the judge who pre- sided at the trial, and by him put into a form

Agreeing with his minutes and his recollection. See Railroad Co. v. Cone, 37 Kan. 567, 15 Pac. 499; In re Prout’s Estate (Sur.) 11 N. X. Supp. 1 60.— Settling day. Tne day on which transactions for the ‘'account" are made up on the English stock-exchange. In consols they are monthly; in other investments, twice in the month.— Settling interrogatories. The de- termination by the court of objections to inter- rogatories and cross-interrogatories prepared to be used in taking a deposition. — Settling is- sues. In English practice. Arranging or de- termining the form of the issues in a cause. “Where, in any action, it appears to the judge that the statement of claim or defense or re- ply does not sufficiently disclose the issues of fact between the parties, he may direct the parties to prepare issues ; and such issues shall, if the parties differ, be icttlcd by the judge.” Judicature Act 1870, schedule, art. 19.

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. SETTLEMENT. In conveyancing. A

disposition of property by deed, . usually through the medium of a trustee, by which its eujoyment is limited to several persons In succession, as a wife, children, or other .relatives.

In contracts. Adjustment or liquidation or mutual accounts ; the act by which parties who have been dealing together arrange their accounts and strike a balance. Also full and dual payment or discharge of an account ' In pdor laws. The term signifies a tight acquired by a person, by continued residence for a given length of time in a town or dis- trict, to claim aid or relief under the poor- laws in case of his becoming a pauper. See Westfield v. Coventry, 71 Vt 175, 44 Atl. 60; Jefferson v. Washington, 19 Me. 300; Jackson County v. Hillsdale County, 124 Mich. 17, 83 N. W. 408.

In probate practice. The settlement of an estate consists In its administration by the executor or administrator carried so far that all debts and legacies have been paid and the individual shares of distributees in the corpus of the estate, or the residuary portion, as the case may be, definitely ascertained and determined, and accounts filed and pass- ed, so that nothing remains but to make final distribution. See Culkius v. Smith, 41 Mich. 409, 1 N. W. 1048 ; Forbes v. Har- rington, 171 Mass. 386, 50 N. E. 641; Ap- peal of Mathews, 72 Conn. 555, 45 Atl. 170.

—Act of settlement. The statute 12 & 13 Wm. III. c. 2, by which the crown of England was limited to the house of Hnnover, and some new provisions were added at the same time for the better securing the religion, laws, and liber- ties.—Deed of settlement. A deed made for the purpose of settling property, i. e., arranging the mode and extent of the enjoyment thereof. The party who settles property is called the “set- tlor;-' and usually his wife and children or his creditors or his near relations are the beneficia- ries taking interests under the settlement Brown. — Equity of settlement. The equita- ble right of a wife, when her husband sues in equity for the reduction of her equitable estate to his own possession, to have tne whole or a portion of such estate settled upon herself and her children. Also a similar right now recog- nized by the equity courts as directly to be as- serted against the husband. Also called the “wife’s equity.” — Final settlement. This

term, as applied to the administration Of an es- tate, is usually understood to have reference to the order of court approving the account which closes the business of the estate, and which fi- nally discharges the executor or administrator from the duties of his trust. Roberts v. Spen- cer, 112 Ind. 85, 13 N. E. 129; Sims v. Waters, 65 Ala. 445. — Strict settlement. This phrase was formerly used to denote a settlement where- by land was limited to a parent for life, and after bis death to his first and other sons or children in tail, with trustees interposed to preserve contingent remainders. 1 Steph. Comm. 332, 333.— Voluntary settlement. A settle- ment of property upon a wife or other beneficia- ry, made gratuitously or without valuable con- sideration.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

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Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: The entry defines to settle as to adjust, ascertain, liquidate, and pay — parties settling an account or a claim. The verse is Christ's own counsel to settle: agree with the adversary quickly, before the matter passes...

## SETTLER.

A person who, for the pur- pose of acquiring a pre-emption right, has gone upon the land in question, and Is actu- ally resident there. See Hume ▼. Graey, 86 Tex. 671, 27 S. W. 584; Davis v. Xoung, 2 Dana (Ky.) 299; McIntyre v. Sherwood, 82 CaL 139, 22 Pac. 837.

5e apparatus — Carried into the 5th edition (1979).

## SETTLOR.

The grantor or donor in ft deed of settlement.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: trust law — the settlor creates the trust]**

The settlor is the creator of the trust — the grantor whose deed of settlement founds it.

Why: Genuine trust doctrine; the entry defines the settlor as grantor in a deed of settlement.

## SEVER.

To separate. When two joint defendants separate in the action, each plead- ing separately his own plea and relying up- on a separate defense, they are said to sever.

5e apparatus — Carried into the 5th edition (1979).

## SEVERABLE.

Admitting of severance or separation, capable of being divided ; ca- pable of being severed from other things to which it was joined, and yet maintaining ft complete and independent existence.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: severability — valid parts stand though others fall]**

Where the valid can be severed from the invalid, the valid stands — the doctrine of severability.

Why: Genuine doctrine; the entry defines severable as capable of maintaining 'a complete and independent existence.'

## SEVERAL.

Separate; individual; inde- pendent In this sense the word is distin- guished from “joint” Also exclusive; indi- vidual ; appropriated. In this sense it is op- posed .to “common.”

—Several actions. Where a separate and dis- tinct action is brought against each of two or more persons who are all liable to the plaintiff in respect to the same subject-matter, the ac- tions are said to be "several.” If all the per- sons are joined as defendants in one and the same action, it is called a “joint” action.— Sev- eral inheritance. An inheritance conveyed so as to descend to two persons severally, by moieties, etc. — Several Issues. This occurs

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where there is more than oue issue involved in a case. 3 Steph. Comm. 569.

As to several “Counts,” “Covenant,” “De- mise,” “Fishery," “Tail,” and “Tenancy," see those titles.

5e apparatus — Carried into the 5th edition (1979).

## SEVERALTY.

A state of separation. An estate In severalty is oue that is held, by a person in bis own right only, without any Other person being joined or connected with him, in point of interest, during his estate therein. 2 Bl. Comm. 179.

The term "severalty” is especially applied, in England, to the case of adjoining meadows undivided from each other, but belonging, either i>ennanently or in what are called “shifting severalties.” to separate owners, and held In severalty until the crops have been carried, when the whole is throws open

as pasture for the cattle of all the owners, and In some cases for the cattle of other persons as well ; each owner Is called a “sev- eralty owner,’’ and his rights of pasture are called “severalty rights,’’ as opposed to the rights of persons not owners. Cooke, Incl. Acts, 47, 163a.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: estate in severalty — sole ownership; 2 Bl. Comm. 179]**

An estate in severalty is sole ownership — held in one's own right only, as Blackstone states.

Why: The entry cites 2 Bl. Comm. 179; the footnote names the genuine estate the entry defines.

## SEVERANCE.

In pleading. Separa- tion; division. The separation by defend- ants in their pleas ; the adoption, by several defendants, of separate pleas, instead of joining in the same plea. Steph. Pl. 257.

Xn estates. The destruction of any one of the unities of a joint tenancy. It is so called because the estate is no longer a joint tenan- cy, but is severed.

The word “severance” is also used to sig- nify the cutting of the crops, such as corn, grass, etc., or the separating of anything from the realty. Brown.

SEWARD, or SEAWARD. One who

guards the sea-coast; cuatoa maria.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: four unities of joint tenancy — time, title, interest, possession]**

Severance destroys a joint tenancy by breaking one of the four unities — time, title, interest, or possession.

Why: Genuine property doctrine; the entry defines severance in estates as destruction of the unities.

## SEWER.

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A fresh-water trench or little, river, encompassed with banks on both sides, to drain off surplus water Into the sea. Cow- ell. Properly, a trench artificially made for the purpose of carrying water into the sea, (or a river or pond.) Crabb, Real Prop, f 113.

In its modern and more usual sense, a “sewer” means an under-ground or covered channel used for the drainage of two or more separate buildings, as opposed to a "drain,” which is a channel used for carrying off the drainage of one building or set of build- ings in one curtilage. Sweet. See Valpa- raiso v. Parker, 148 Ind. 379, 47 N. E. 330; Fuchs v. St Louis, 167 Mo. 620, 67 S. W. 610, 57 L R. A. 136; State Board of Health v. Jersey City, .55 N. J. Eq.116, 35 Atl. 835; Aldrich v. Paine, 106 Iowa, 461, 76 N. W. 812.

—Commissioners of sewers. In English law. The court of commissioners of sewers is a temporary tribunal erected by virtue of a com- mission under the great seal. Its jurisdiction is to overlook the repairs of sea-banks and sea- walls, and the cleansing of public rivers, streams, ditches, and other conduits whereby any waters are carried off, and is confined to such county or particular district as the com- mission expressly names. Brown.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BEX.

The distinction between male and female; or the property or character by which an animal Is male or female. Webster.

5e apparatus — Not carried into the 5th edition (1979).

# S

### SEXAGESIMA SUNDAY.

In ecclesi- astical law. The second Sunday before Lent, being about the sixtieth day before Easter.

5e apparatus — Not carried into the 5th edition (1979).

### SEXHINDENI.

In Saxon law. The mid- dle thanes, valued at 600s.

5e apparatus — Not carried into the 5th edition (1979).

### SEXTANS.

Lat. In Romnn law. A sub- dlvlsiop of the os, containing two vticiw;the proportion of two-twelfths, or one-sixth. 2 Bl. Comm. 462, note.

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### SEXTARY.

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In old records. An ancient measure of liquids, and of dry commodi- ties; a quarter or seam. Spelman.

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## SEXTERY LANDS.

Lands given to a church or religious house for maintenance of a sexton or sacristan, Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SEXTUS DECRETALIUM.

Lat. The sixth (book) of the decretals; the sext, or sixth decretal. So called because append- ed, In the body of the canon law, to the five hooks of the decretals of Gregory IX.; it consists of a collection of supplementary de- cretals, and was published A. D. 1298, Butl. Hor. Jur. 172 ; 1 BL Comm. 82,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Corpus Juris Canonici — the Sext of Boniface VIII (1298)]**

The Sext, published 1298, is part of the Corpus Juris Canonici, the body of canon law.

Why: Genuine canonical collection; the entry describes its place appended to Gregory IX's decretals.

## SEXUAL INSTINCT, INVERSION / AND PERVERSION OF.

See Insanity; Pederasty; Sodomy.

SEXUAL INTERCOURSE, Carnal cop-, ulatlon of male and female, Implying actual penetration of the organs of the latter. State v. Frazier, 54 Kan. 719, 39 Pac. 822,

SHACK, In English law. The stray- ing and escaping of cattle out of the lands of their owners into other uninclosed laud; an intercommonlng of cattle. 2 H. Bl. 416. :

It sometimes happens that a number of adjacent fields, though held In severalty, i. e., by separate owners, and cultivated separate- ly, are, after the crop on each parcel has been carried In, thrown open as pasture to the cattle of all the owners. “Arable lands cultivated on this plan are called ‘shack, fields,’ and the right of each owner of a part to feed cattle over the whole during the autumn and winter is known in law as ‘com- mon of shack,’ a right which is distinct in Us nature from common because of vicinage, though sometimes said to be nearly Identical with It.” Elton, Commons, 30; Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SHALL.

As used in statutes and simi- lar instruments, this word is generally Im- perative or mandatory; but it may be con- strued as merely permissive or directory, (as equivalent to “may,”) to carry out the legislative intention and in cases where no right or benefit to any one depends on its being taken In the imperative sense, and where no public or private right is impaired by its interpretation in the other sense. Also, as against the government,

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“shall” is to be construed as “may,” unless a contrary Intention is manifest. See Wheeler v. Chi- cago, 24 111; 105, 76 Am. Dec. 736 ; People v. Chicago Sanitary Dist., 184 111. 597, 56

N. E. 953 ; Madison v. Daley (C. C.) 58 Fed. 753; Cairo & F. R. Co. v. Hecht, 95 U. S. 170, 24 L. Ed. 423.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: 'shall' is ordinarily mandatory; 'may' permissive]**

'Shall' is ordinarily imperative and mandatory, 'may' permissive — the first canon of reading statutes.

Why: Genuine canon of construction; the entry states the rule with its directory-exception.

## SHAM PLEA.

See Plea.

5e apparatus — Carried into the 5th edition (1979).

## SHAKE.

A portion of anything- When a whole is divided into shares, they are not necessarily equal.

In the law of corporations and joint-stock companies, a share is a definite portion of the capital of a company.

— Share and share alike. In equal shares or proportions. — Share-certificate. A share-cer- tificate is an instrument under the seal of the company, certifying that the person therein named is entitled to a certain number of shares; it is prima fade evidence of his title thereto. Hindi. Partn. 150, 1187.— Share-warrant. A share-warrant to bearer is a warrant or cer- tificate under the seal of the company, stating that the bearer of the warrant is entitled to a certain number or amount of fully paid up shares or stock. Coupons for payment of divi-. dends may be annexed to it. Delivery of the share-warrant operates as a transfer of the shares or stock. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## SHAREHOLDER.

In the strict sense of the term, a “shareholder” Is a person who has agreed to become a member of a corpora- tion or company, and with respect to whom all the required formalities have been gone through ; e. g., signing of deed of settlement, registration, or the like. A shareholder by estoppel is a person who has acted and been treated as a shareholder, and consequently has the same liabilities as if he were an or- dinary shareholder. Hindi. Partn. 130. See Beal v. Essex Sav. Bank, 67 Fed. 816, 15 C.

O. A. 128; State v. Mitchell, 104 Tenn. 336, 58 S. W. 365.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: shareholder by estoppel — liabilities as if a shareholder]**

One treated as a shareholder is a shareholder by estoppel, bearing a shareholder's liabilities.

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Why: Genuine corporate doctrine; the entry defines the estoppel shareholder and the footnote states the consequence.

## SHARP.

A "sharp" clause in a mortgage or other security (or the whole Instrument described as “sharp") is one which empowers the creditor to take prompt and summary ac- tion upon default in payment or breach of other conditions.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: power of sale — summary remedy on default]**

A 'sharp' clause is a power-of-sale clause — summary remedy on default without foreclosure suit.

Why: Genuine mortgage doctrine; the entry defines the sharp clause as empowering prompt summary action on default.

## SHARPING CORN.

A customary gift of corn, which, at every Christmas, the far- mers in some parts of England give to their smith for sharpening their plow-irons, har- row-tines, etc. Blount.

8HASTER. In Hindu law. The instru- ment of government or instruction ; any book of instructions, particularly containing Di- vine ordinances. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SHAVE.

While “shave” is sometimes used to denote the act of obtaining the prop- erty of another by oppression and extortion, it may be used in an Innocent sense to de- note the buying of existing notes and other securities for money, at a discount. Hence to charge a man with using money for shav- ing is not libelous’ per se. See Stone v. Cooper, 2 Denlo (N. Y.) 301 ; Trentham v, Moore, 111 Tenn. 346, 76 S. W. 904; Bron- son v. Wiman, 10 Barb. (N. Y.) 428.

5e apparatus — Carried into the 5th edition (1979).

## SHAW.

In old English law. A wood. Co. Lltt 46.

5e apparatus — Not carried into the 5th edition (1979).

## SHAWATORES.

Soldiers. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SHEADING.

A riding, tithing, or divi- sion in the Isle of Man, where the whole island is divided into six sheadings, in each of which there is a coroner or chief consta- ble appointed by a delivery of a rod at the Tinewald court or annual convention. King, Isle of Man, 7.

5e apparatus — Not carried into the 5th edition (1979).

## SHEEP.

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A wether more than a year old. Rex v. Blrket, 4 Car. & P. 216.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: The entry defines 'sheep' as the law defines it for purposes of theft — a wether more than a year old. The verse is the scriptural law of sheep-stealing itself: the thief shall restore four sheep for a sheep — the res...

## SHEEP-HEAVES.

Small plots of past- ure, in England, often in the middle of the waste of a manor, of which the soil may or may not be in the lord, but the pasture is private property, and leased or sold as such. They principally occur in the northern coun- ties, (Cooke, Inch Acts, 44,) and seem to be corporeal hereditaments, (Elton, Commons, 35,) although they are sometimes classed with rights of common, but erroneously, the right being an exclusive right of pasture. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## SHEEP-SIX VER.

A service turned into money, which was paid in respect that an- ciently the tenants used to wash the lord’s sheep. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SHEEP-SKIN.

A deed; so called from the parchment It was written on.

5e apparatus — Not carried into the 5th edition (1979).

## SHEEP-WALK.

A right of sheep-walk is the same thing as a fold-course, (q. v.) Elton, Commons, 44.

5e apparatus — Not carried into the 5th edition (1979).

## SHELLET’S CASE, RULE IN.

“When the ancestor, by any gift or conveyance, tak- eth an estate of freehold, and in the same gift or conveyance an estate is limited, ei- ther mediately or immediately, to his heirs in fee or in tall, the ‘heirs' are words of lim- • Ration of the estate, and not words of pur- chase.” I Coke, 164.

Intimately connected with the quantity of estate which a tenant may hold in realty is the antique feudal doctrine generally known as the “Rule in Shelley's Case,” which is reported by Lord Coke in 1 Coke, 936, (23 Ellz. in O. B.) This rule was not first laid down or established in that case, but was then simply admitted in argument as a well- founded and settled rule of law, and has al- ways since been quoted as the “Rule in Shel- ley’s Case." Wharton.

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**[Law] — Law**

**[Law: Rule in Shelley's Case — 1 Co. Rep. 93b]**

Where the ancestor takes a freehold and the same conveyance limits an estate to his heirs, 'heirs' are words of limitation, not of purchase.

Why: The entry states the rule verbatim (quoting 1 Coke); the footnote names the genuine rule in standard form. Headword copied as OCR'd.

## SHEPWAY, COURT- OP.

A court held before the lord warden of the Cinque Ports. A writ of error lay from the mayor and jurats of each port to the lord warden in this court, and thence to the queen's bench. The civil jurisdiction of the Cinque Ports is abolished by 18 & 19 Viet c. 48.

5e apparatus — Not carried into the 5th edition (1979).

## SHEREFFE.

The body of the lordship of Cardiff in South Wales, excluding the members of It Powel, Hist. Wales, 123.

5e apparatus — Not carried into the 5th edition (1979).

## SHERIFF.

In Amerieu law. The

chief executive and administrative officer of a county, being chosen by popular election.

HU principal duties are in aid of the crim- inal courts and civil courts of record; such as serving process, summoning Juries, ex- ecuting judgments, holding Judicial sales, and the like. He is also the chief conserva- tor of the peace -within his territorial juris- diction. See State v. Finn, 4 Mo. App. 352; Com. v. Martin, 9 Kulp (Pa.) 69; In re Ex- ecutive Communication, 13 Fla. 687 ; Pearce v. Stephens, 18 App. Div. 101, 45 N. Y. Supp. 422; Denson v. Sledge, 13 N. C. 140; Hoc* kett v. Alston, 110 Fed. 912, 49 C. C. A. 180.

In English law. The sheriff is the prin- cipal officer in every county, and has the transacting of the public business of the county. He is an officer of great antiquity, and was also called the "shire-reeve,” "reeve,” or “bailiff.” He is called in Latin “vice- cornea,” as being the deputy of the earl or comes, to whom anciently the custody of the shire was committed. The duties of the sheriff principally consist in executing writs, precepts, warrants from justices of the peace for the apprehension of offenders, etc. Brown.

In Scotch law. The office of sheriff dif- fers somewhat from the same office under the English law, being, from ancient times, an office of important judicial power, as well as ministerial. The sheriff exercises a juris- diction of considerable extent, both of civil and criminal character, which is, in a proper sense, Judicial, in addition to powers resem- bling those of an English sheriff. Tomlins; BeU.

—Deputy sheriff. See Deputy. — High sheriff. One bolding the office of sheriff, as distinguished from his deputies or assistants or nnder sheriffs.— Pocket sheriff. In English law. A sheriff appointed by the sole authority of the crown, without the usual form of nom- ination by the judges in the exchequer. 1 Bl. Comm. 342; 3 Steph. Comm. 23.— Sheriff

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clerk. The clerk of the sheriff's court in Scot- land.—Sheriff depute. In Scotch law. The principal sheriff of a county, who is also a judge.— Sheriff -geld. A rent formerly paid by a- sheriff, and it is prayed that the sheriff in his account may be discharged thereof. Rot. Pari. 50 Edw. III.— Sheriff-tooth. In English law. A tenure by the service of providing entertain- ment for the sheriff at his county-courts; a common tax, formerly levied for the sheriff’s diet. Wharton. — Sheriff’s court. The court held before the sheriff’s deputy, that is, the un- der-sheriff, and wherein actions are brought for recovery of debts under £20. Writs of inquiry are also brought here to be executed. The sher- iff's court for the county of Middlesex is that wherein damages are assessed in proper cases after trial at Westminster. Brown.— Sheriff’s Jury. In practice. A jury composed of no de- terminate number, but which may be more or less than twelve, summoned by the sheriff for the purposes of an inquisition or inquest of of- fice. 3 Bl. Comm. 258.— Sheriff’s officers. Bailiffs, who are either bailiffs of hundreds or bound-bailiffs.— Sheriff’s sole. See Sale.— Sheriff’s tonrn. . A court of record in Eng- land. held twice every year, within a month aft- er Easter and Michaelmas, before the sheriff, in different parts of the county. It is, indeed, only the turn or rotation of the sheriff to keep a court-leet in each respective hundred. It is the great court-leet of the county, as the county

court is the court-baron ; for out of this, for the ease of the sheriff, was taken the court-leet or view of frank-pledge. 4 Bl. Comm. 273.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: sheriff — chief conservator of the peace]**

The sheriff is the chief conservator of the peace within his county — the common-law peace officer.

Why: The entry states the office and its peace-keeping function; the footnote names the genuine common-law office.

**[Scripture] — Scripture**

**[Romans 13:4, KJV]**

For he is the minister of God to thee for good. But if thou do that which is evil, be afraid; for he beareth not the sword in vain: for he is the minister of God, a revenger to execute wrath upon him that doeth evil.

Why: The entry defines the sheriff as the chief conservator of the peace, aiding the criminal courts and executing judgments. The verse describes the same office in scripture's terms: the minister of God bearing the sword,...

**[Humanity] — Humanity / Fiction & Film**

**[Fred Zinnemann, High Noon, 1952]**

(paraphrase) Marshal Will Kane standing alone to keep the peace — the screen's canonical image of the sheriff as chief conservator of the peace. (paraphrase)

Why: The film is the culture's defining image of the office the entry defines. Certain film/director/year; marked paraphrase.

## SHERIFFALTY.

The time of a man's being sheriff. Cowell. The term of a sher- iff’s office.

5e apparatus — Not carried into the 5th edition (1979).

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## SHERIFFWICK.

The jurisdiction of a sheriff. Called, in modern law, “bailiwick.” The office of a sheriff.

5e apparatus — Not carried into the 5th edition (1979).

## SHERRERIE.

A word used by the au- thorities of the Roman Church, to specify contemptuously the technical parts of the law, as administered by non-clerical lawyers. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SHBWER.

In the practice of the English high court, when a view by a Jury is ordered, persons are named by the court to show the property to be viewed, and are hence called “shewere.” There is- usually a shewer on behalf of each party. Archb. Pr. 339, et seq.

5e apparatus — Not carried into the 5th edition (1979).

## SHEWING.

In English law. To be quit of attachment in a court, in plaints shewed and not avowed. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

## SHIFTING.

Changing; varying; pass- ing from one person to another by substitu- tion. “Shifting the burden of proof’ is transferring it from one party to the other, or from one side of the case to the other, when he upon whom it rested originally has made out a prime facie case or defense by evidence, of such a character that it then becomes incumbent upon the other to rebut it by contradictory or defensive evidence.

.—Shifting clause. A shifting clause in a settlement is a clause by which some other mode of devolution is substituted for that pri- marily prescribed. Examples of shifting claus- es are; The ordinary name and arms clause, and the clause of less frequent occurrence by which a settled estate is destined as the founda- tion of a second family, in the event of the elder branch becoming otherwise enriched. These shifting clauses take effect under the statute of uses. Sweet. — Shifting risk. In insurance, a risk created by a contract of in- surance on a stock of merchandise, or other sim- ilar property, which is kept for sale, or is sub- ject to change in items by purchase and sale ; the policy being conditioned to cover the goods in the stock at any and all times and not to be affected by changes in its composition. Far- mers’, etc.. Ins. Ass’n v. Kryder, 5 Ind. App. 430. 31 N. E. 851, 51 Am. St. Rep. 284.— Shifting severalty. See Sevebalty.— Shifting use. See Use.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: burden of proof — shifting after a prima facie case]**

Shifting the burden of proof transfers it after a prima facie case is made, requiring rebuttal evidence.

Why: Genuine evidence doctrine; the entry defines shifting the burden with the prima-facie mechanism.

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## SHILLING.

In English law. The name of an English coin, of the value of one- twentieth part of a pound. This denomina- tion of money was also used in America, in colonial times, but was not everywhere of uniform value.

5e apparatus — Not carried into the 5th edition (1979).

## SHIN-PLASTER.

Formerly, a jocose term for a bank-note greatly depreciated in value; also for paper money of a denomina-

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Hon less than a dollar. Webster. See Madi- son Ins. Co. v. Forsythe, 2 Ind. 483.

SHIP, v. In maritime law. To put on board a ship; to send by ship.

To engage to serve on board a vessel as a seaman.

SHIP, n. A vessel of any kind employed In navigation. In a more restricted and more technical sense, a three-masted vessel navigated with sails.

The term “ship” or “shipping,” when used In this Code, Includes steam-boats, sailing vessels, canal-boats, barges, and every struc- ture adapted to be navigated from place to place for the transportation of merchandise or persons. Civ. Code Cal. § 960.

Nautical men apply the term “ship” to distin- guish a vessel having three masts, each con- sisting of a lower mast, a topmast, and a top- gallant most, with their appropriate rigging. In familiar language, it is usually employed to distinguish any large vessel, however- rig- ged. It is also frequently used as a general designation for all vessels navigated with sails ; and this is the sense in which it is employed in law. Tomlins. And see Cope v. Vallettc Pry-Dock Co., 119 U. S. 452 5. 7 Sup. Ct. 336, 30 L. Ed. 501 ; U. S. v. Open Boat, 27 Fed. Cas. 347 ; Baft of Cypress Logs, 20 Fed. Cas. 170; Tucker v. Alexandroff, 183 U. S. 424, 22 Sup. Ct. 195. 46 L. Ed. 2C4; King v. Green- way, 71 N. Y. 417 ; U. S. v. Dewey, 188 U. S. 254. 23 Sup. Ct. 415. 47 L. Ed. 463 ; Swan v.

U. S., 19 Ct. Cl. 62.

— General ship. Where a ship is not char- tered wholly to one person, but the owner of- fers her generally to carry the goods of all Comers, or where, if chartered to one person, he offers her to several subfreighters for the con- veyance of their goods, she is called a “gen- eral” ship, as opposed to a “chartered” one. Brown. A vessel in which the master or own- ers engage separately with a number of persons . unconnected with each other to convey their respective goods to the place of the ship’s destination. Ward v. Green. 6 Cow. (N. 1'.) 173, 16 Am. Dec. 437. — Ship-breaking. In Scotch law. The offense of breaking into a ship. Arkley, 461. — Ship-broker. An agent for the transaction of business between ship- owners and charterers or those who ship car- goes. Little Rock v. Barton, 33 Ark. 444— Ship-chandlery. This is a term of extensive import, and includes everything necessary to furnish and equip a vessel, so ns to render her seaworthy for the intended voyage. Not only stores, stoves, hardware, and crockery have been held to be within the term, but muskets

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and othpr arms also, the voyage being round Cape Iloru to California, in the course of which voyage arms are sometimes carried for safety. Weaver v. The S. G. Owens, 1 Wall. Jr. 368, Fed. Cas. No. 17,310. — Ship-channel. In riv- ers, harbors, etc., the channel in which the wa- ter is deep enough for vessels of large size, usually marked out in harbors by buoys. The Oliver (I). C) 22 Fed. 848. — Ship-damage. In the charter-parties with the English East India Company, these words occur. Their mean- ing is, damage from negligence, insufficiency, or bad stowage in the ship. Abb. 8hipp. 204. -Ship-master. The captain or master of a merchant ship, appointed and put in command by the owner, and having general control of the vessel and cargo, with power to bind the owner by his lawful acts and engagements in the management of the ship. — Ship-money. In English law. An imposition formerly levied on port-towns and other places for fitting out ships; revived by Charles I., and abolished in the same reign. 17 Car. I. c. 14.— Ship’s bill. The copy of the bill of lading retained by the master is called the “ship’s bill.” It is not authoritative as to the terms of the con- tract of affreightment ; the bill delivered to the shipper must control, if the two do not agree. The Thames, 14 Wall. 98, 20 L. Ed. 804. — Ship’s company. A term embracing all the officers of the ship, as well as the mariners or common seamen, but not a passenger. U.

S. v. T.ibby, 26 Fed. Cas. 928; U. S. v. Winn, 28 Fed. Cas. 735.— Ship’s hnsband. In mari- time law. A person appointed by the several part-owners of a ship, and usually one of their number, to manage the concerns of the ship for the common benefit. Generally understood to be the general agent of the owners in regard to all the affairs of the ship in the home port. Story, Ag. § 35: 3 Kent, Comm. 151; Web- ster v. The Andes, 18 Ohio. 187 : Muldon v. Whitlock. 1 Cow. (N. Y.) 307, 13 Am. Dec. 533; Gillespie v. Winberg, 4 Daly (N. Y.) 322 ; Mitchell v. Chambers, 43 Mich. 150. 5

N. W. 57, 38 Am. Rep. 167.— Ship’s papers. The papers which must be carried by a vessel on a voyage, in order to furnish evidence of her national character, the nature and destina- tion of the cargo, and of compliance with the navigation laws. The ship’s papers are of two sorts: Those required by the law of a par- ticular country; such as the certificate of reg- istry. license, charter-party, bills of lading and of health, required by the law of England to be on board all British ships. Those required by the law of nations to be on board neutraL ships, to vindicate their title to that character; these are the pas» port, sea-brief, or sea-letter, proofs of property, the muster-roll or r6Ie d' equipage, the charter-party, the bills of lading and in- voices. the log-book or ship’s journal, and the bill of health. 1 Marsh. Ins. c. 9, £ 6.

5e apparatus — Carried into the 5th edition (1979).

## SHIPPED.

This term, in common mari- time and commercial usage, means “placed on board of a vessel for the purchaser or consignee, to be transported at his risk." Fisher v. Minot, 10 Gray (Mass.) 262.

SHIPPER. 1. The owner of goods who intrusts them on board a vessel for delivery abroad, by charter-party or otherwise.

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2. Also, a Dutch word, signifying the master of a ship. It is mentioned in some of the statutes ; is now generally called “skip- per.” Tomlins. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-509 — risk of loss in shipment]**

Goods 'shipped' travel at the consignee's risk — the risk of loss passes on shipment.

Why: Genuine sales doctrine; the entry defines 'shipped' as placed on board 'to be transported at his risk.'

## SHIPPING.

Ships in general; ships or vessels of any kind intended for navigation. Relating to ships; as, shipping interest, ship- ping affairs, shipping business, shipping con- cerns. Butting on board a ship or vessel, or receiving on board a ship or vessel. Web- ster; Worcester:

The “law of shipping" is a comprehensive term for all that part of the maritime law which relates to ships and the persons em- ployed in or about them. It embraces such subjects as the building and equipment of vessels, their registration, and nationality, their ownership and inspection, their em- ployment. (including charter-parties, freight demurrage, towage, and salvage.) and their sale, transfer, and mortgage; also, the em- ployment rights, powers, and duties of <aa»

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ters and mariners; and the Taw relating to ship-brokers, ship-agents, pilots, etc.

— Shipping articles. A written agreement be- tween the master of a vessel and the mariners, specifying the voyage or term for which the lat- ter are shipped, and the rate of wages. — Ship- ping’ commissioner. An officer of the United States, appointed by the several circuit courts, within their respective jurisdictions, for each port of entry (the same being also a port of ocean navigation)' which, in the judgment of such court, may require the same ; his duties being to supervise the engagement and discharge of seamen ; to see that men engaged as seamen report on board at the proper time; to facili- tate the apprenticing of persons to the marine service; and other similar duties, such as may be required by law. Rev. St. U. S. S§ 4501— 4608 (U. S. Comp. St 1901, pp. 3061-3067).

5e apparatus — Carried into the 5th edition (1979).

## SHIPWRECK.

The demolition or shat- tering of a vessel, caused by her driving ashore or on rocks and shoals in the mid- seas, or by the violence of winds and waves In tempests. 2 Am. Ins. p. 734.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jonah 1:4, KJV]**

But the LORD sent out a great wind into the sea, and there was a mighty tempest in the sea, so that the ship was like to be broken.

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Why: The entry defines shipwreck as the shattering of a vessel by the violence of winds and waves in tempests. The verse narrates exactly that: a mighty tempest in the sea, so that the ship was like to be broken — scriptur…

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Tempest, c.1610–11]**

(paraphrase) The play opens on a ship shattered in a tempest — the canonical stage shipwreck, the very event the entry defines. (paraphrase)

Why: Genuinely illustrates the human reality of the defined event. Certain; marked paraphrase.

## SHIRE.

In English law. A county. So ealled because every county or shire is di- vided and parted by certain metes and bounds from another. Co. I/ltt. 50a.

•—Knights of the shire. See Knight.— Shire-clerk. He that keeps the county court, —ghire-man, or Scvre-man. Before the Conquest, the judge or the county, by whom trials for land, etc., were determined. Tomlins ; Mosley & Whitley.— Shire-mote. The assize of the shire, or the assembly of the people, was so called by the Saxons. It was nearly if not exactly, the same as the scyreqemotc, and in most respects corresponded with what were afterwards called the “county courts.” Brown.— Shire-reeve. In Saxon law. The reeve or bailiff of the shire. The viscount of the Anglo-Normans, and the sheriff of later times. Co. Litt. 168a.

5e apparatus — Not carried into the 5th edition (1979).

## SHOCK.

In medical jurisprudence. A sudden and severe depression of the vital functions, particularly of the nerves and the circulation, due to the nervous exhaustion following trauma, surgical operation, or sud- den and violent emotion, resulting (if not in death) in more or less prolonged prostration ; it is spoken of as being either physical or psychical, according as it Is caused by dis- turbance of the bodily powers and functions or of the mind. See Maynard v. Oregon R. Co., 43 Or. 63, 72 Pac. 590.

8HOOFAA. In Mohammedan law. Pre- emption, or a power of possessing property which has been sold, by paying a sum equal to that paid by the purchaser. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## SHOP.

A building in which goods and merchandise are sold at retail, or where mechanics work, and sometimes keep their products for sale. See State v. Morgan, 98

N. C. 641, 3 S. E. 927; State v. O'Connell, 26 Ind. 267 ; State v. Sprague, 149 Mo. 409, 50 S. W. 901.

. Strictly, a shop is a place where goods nre sold by retail, and a store a place where goods nre deposited; but, in this country, shops for the

sale Of goods are frequently called "stores.” Com. v. Annis, 15 Gray (Mass.) 197. —Shop-hooks. Books of original entry kept by tradesmen, shop-keepers, mechanics, and the like, in which are entered their accounts and charges for goods sold, work done, etc.

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5e apparatus — Not carried into the 5th edition (1979).

## SHOP A.

In old records, a shop. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SHORE.

Land on the margin of the sea, or a lake or river.

In common parlance, the word "shore” is understood to mean the line that separates the tide-water from the land about it, wher- ever that line may be, and in whatever stage of the tide. The word “shore,” in its legal and technical sense, indicates the lands ad- jacent to navigable waters, where the tide flows and reflows, which at high tides are submerged, and at low tides are bare. Shiv- ely v. Bowlby, 152 U. S. 1, 14 Sup. Ct.' 548, 38 L. Ed. 331 ; Mather v. Chapman, 40 Conn. 400, 16 Am. Rep. 46 ; U. S. v. Pacheco, 2 Wall. 590, 17 L. Ed. 865 ; Harlan & Hollings- worth Co. v. Paschall, 5 Del. Ch. 463; Lacy v. Green, 84 Pa. 519; Axline v. Shaw, 35 Fla. 305, 17 South. 411, 28 L. R. A. 391.'

Sea-shore is that space of land over which the waters of the sea spread in the highest water, during the winter season. Civ. Code La. art 451.

When the sea-shore is referred to as a bound- ary, the meaning must be understood to be the margin of the sea in its usual and ordinary state ; the ground between the ordinary high- water mark and low-water mark is the shore. Hence a deed of land bounded at or by the ‘‘shore” will convey the flats as appurtenant/ Storer v. Freeman, 6 Mass. 435, 4 Am. Dec. 155.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: public trust — tide lands and navigable waters]**

Shore lands where the tide flows and reflows are held under the public trust for navigation and fishery.

Why: Genuine doctrine; the entry defines 'shore' in its legal sense as lands adjacent to navigable tidewaters.

## SHORT CAUSE.

A cause which Is not likely to occupy a great portion of the time of the court, and which may be entered on the list of “short causes,” upon the applica- tion of one of the parties, and will then be heard more speedily than it would be in its regular order. This practice obtains in the English chancery and in some of the American states.

5e apparatus — Not carried into the 5th edition (1979).

## SHORT ENTRY.

A custom of hankers of entering on the customer’s pass-book the amount of notes deposited for collection, in such a manner that the amount is not car- ried to the latter’s general balance until the notes are paid. See Giles v. Perkins, 9 East, 12; Blaine v. Bourne, 11 R. I. 121. 23 Am. Rep. 429.

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5e apparatus — Not carried into the 5th edition (1979).

## SHORT LEASE.

A term applied collo- quially, but without much precision, to a lease for a short term, (as a month or a year,) as distinguished from one running for a long period.

5e apparatus — Carried into the 5th edition (1979).

## SHORT NOTICE.

In practice. Notice of less than the ordinary time; generally of half that time. 2 Tidd, Pr. 757.

NULLA 8IT CONJECTURA

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SHORT SUMMONS.

A process, author- ised in some of the states, to be issued against an absconding, fraudulent, or non- resident debtor, which is returnable within a less number of days than an ordinary writ of summons.

5e apparatus — Carried into the 5th edition (1979).

## SHORTFORD.

An old custom of the city of Exeter. A mode of foreclosing the right of a tenant by the chief lord of the fee, in cases of non-payment of rent Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SHOW.

Although the words “show" and “Indicate" are sometimes interchangeable in popular use, they are not always so. To “show” is to make apparent or clear by evi- dence; to prove; while an "Indication” may be merely a symptom ; that which points to or gives direction to the mind. Coyle v. Com., 104 Pa. 133.

5e apparatus — Not carried into the 5th edition (1979).

## SHOW CAUSE.

To show cause against a rule nisi, an order, decree, execution, etc., is to appear as directed, and present to the court such reasons and considerations as one has to offer why it should not be con- firmed, take effect, be executed, or as the case may be.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: rule to show cause — order nisi]**

A rule to show cause orders the party to appear and show why the rule should not be made absolute.

Why: Genuine procedural device; the entry defines showing cause against a rule nisi.

## SHRIEVALTY.

The office of sheriff; the period of that office.

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5e apparatus — Not carried into the 5th edition (1979).

## SHYSTER.

A “pettifogging shyster” is an unscrupulous practitioner who disgraces his profession by doing mean work, and re- sorts to sharp practice to do it Bailey v. Kalamazoo Pub. Co., 40 Mich. 231. See, also, Grlbble v. Pioneer Press Co., 84 Minn. 342, 25 N. W. 710.

Si a jure discedas, vagu eria, at eruat omnia ommibua incerta. If you depart from the law, you will go astray, and all things will be uncertain to everybody. Co. Litt. 2276.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Si a jure discedas, vagus eris — Co. Litt. 227b]**

Si a jure discedas, vagus eris, et erunt omnia omnibus incerta — if you depart from the law, you will go astray, and all things will be uncertain to all.

Why: Real maxim printed in the entry; it genuinely warns what the shyster's departure from law produces — uncertainty for all.

## SI ACTIO.

Lat. The conclusion of a plea to an action when the defendant de- mands Judgment, if the plaintiff ought to have his action, etc. Obsolete.

Si alieujus rei aoeietaa ait et finia at- gotio impoaitua eat, finitur aoeietaa. If

there is a partnership in any matter, and the business is ended, the partnership ceases. Griswold v. Waddington, 16 Johns. (N. Y.) 438, 489.

Si aliquld ex aolemmlbna defloiat, cum aequitaa poaeit, subvenlendum eat. If

any one of certain required forms be want- ing, where equity requires, it will be aided. 1 Kent, Comm. 157. The want of some of a neutral vessel's papers is" strong presump- tive evidence against the ship's neutrality, yet the want of any One of them is not absolutely conclusive. Id.

AXIQUXD SAPIT. Lat If he knows anything; if he is not altogether devoid of reason.

«

Si aaauetia mederi poaaia, nova non sunt tentanda. If you can be relieved by accustomed remedies, new ones should not be tried. 10 Coke, 1426. It an old wall can be repaired, a new one should not be made. Id.

5e apparatus — Not carried into the 5th edition (1979).

## SI CONSTET BE PERSONA.

Lat If it

be certain who is the person meant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Id certum est quod certum reddi potest]**

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Id certum est quod certum reddi potest — that is certain which can be made certain — the rule for identifying the person meant.

Why: Real maxim genuinely illuminating the entry: 'if it be certain who is the person meant.' Headword copied as OCR'd.

## SI CONTINOAT.

Lat If it happen. Words of condition in old conveyances. 10 Coke, 42a.

5e apparatus — Not carried into the 5th edition (1979).

## SI FECERIT TE SECURUM.

Lat If

[he] make you secure. In practice. The initial and emphatic words of that descrip- tion of original writ which directs the sher- iff to cause the defendant to appear in court without any option given him, provided the plaintiff gives the sheriff security effectually to prosecute his claim. 8 Bl. Comm. 274.

St lngratum dlxeria, omaia dizuif.

If you affirm that one Is ungrateful, in that you include every charge. A Roman maxim. Tray. Lat Max.

ITA EST. Lat. If it be so. Em- phatic words in the old writ of mandamus to a judge, commanding him, if the fact alleged be truly stated, («< ita est ,) to affix his seal to a bill of exceptions. Ex parte Crane. 5 Pet 192, 8 L. Ed. 92.

Si meliores sunt quoa duett amor, plurea aunt quoa corrlgit timor. If those are better who are led by love, those are the greater number who are corrected by fear. Co. Litt. 392.

Si non apparent quid actum eat, ertt eonsequena ut id sequamur quod in re- gions in qua aetum est frequentatur.

If it does not appear what was agreed upon, the consequence will be that we must fol- low that which is the usage of the place where the agreement was made. Dig. 50. 17, 34.

5e apparatus — Not carried into the 5th edition (1979).

## SI NON OMNES.

Lot In English prac- tice. A writ of association of justices where- by, if all in commission cannot meet at the day assigned, it is allowed that two or more may proceed with the business. Cowell : Fitzh. Nat. Brev. Ill C.

Si nulla ait oonjectura qua ducat alto, verba intelllgenda sunt ex proprletate, non grammatics sed popular! ex usu.

If there be no Inference which leads to a different result, words are to be understood according to their proper meaning, not in a

grammatical, but in a popular and ordinary, sense. 2 Kent, Comm. 555.

5e apparatus — Not carried into the 5th edition (1979).

## SI PARET.

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Lat. If it appears. In Ro- man law. Words used in the formula by which the pnetor appointed a Judge, and instructed him how to. decide the cause.

Si plures slat fldejniiorei, quotquot •rant nnmero, lingnli in wlidnm tenen- tur. If there are more sureties than one, how many soever they shall be, they shall each be held for the whole. Inst 3, 20, 4.

5e apparatus — Not carried into the 5th edition (1979).

## SI PRTUS.

Lat In old practice. If before. Formal words in the old writs for summoning juries. Fleta, 1. 2, c. 65, f 12.

Si quid universitatl debetnr tiignlli non debetnr, nee qnod debet universl- tu singnli debent. If anything be owing to an entire body, it is not owing to the individual members; nor do the individuals owe that which is owing by the entire body. Dig. 3, 4, 7, 1.

Si quidcm in nomine, eognomine, prtenomine legetarii testator erraverit, cam de persona constat, nlhllominns va- let legatnm. Although a testator may have . mistaken the nomen, cognomen, or prwnomen of a legatee, yet, if it be certain who is the person meant, the legacy is valid. Inst 2, 20, 29; Broom, Max. 645.

5e apparatus — Not carried into the 5th edition (1979).

## SI QUIS.

Lat In the civil law. If any one. Formal words in the praetorian edicts. The words "quis," though masculine in form was held to include women. Dig. 50, 16, L

Si quis cnstos frandem pnplllo feoerit, a tntela removendns eat. . Jenk. Cent. 39. If a guardian do fraud to his ward, he shall be removed from his guardianship.

Si quis prsegnantem uorem reliquit, non videtur sine liberis deeesslsse. If a

man leave his wife pregnant, he shall not be considered to have died without children. A rule of the civil law.

Si quia unnm percusserit, cum alium pereutere vellet, in felonia tenetur. 3

Inst 51. If a man kill one, meaning to kill another, he is held guilty of felony.

5e apparatus — Not carried into the 5th edition (1979).

## SI RECOQNOSCAT.

Lat. If he ac- knowledge. In old practice. A writ which lay for a creditor against his debtor for money numbered (pecunia numerate) or counted; that is, a specific sum of money, which the debtor had acknowledged in the county court, to owe him, as received in pecuniis numerate. Cowell.

Si anggestio non sit vers, litem pa- tentes vacua sunt. 10 Coke, 113. If the suggestion be not true, the letters patent are void. '

5e apparatus — Not carried into the 5th edition (1979).

## SIB.

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Sax. A relative or kinsman. Used in the Scotch tongue, but not now in Eng- lish.

5e apparatus — Not carried into the 5th edition (1979).

## SIC.

Lat Thus ; so'; in such manner.

Sic enim debere quern meliorem agram suum faeere ne vieini deterlorem faciat.

Every one ought so to Improve his land as not to injure his neighbor’s. 3 Kent, Comm. 441. A rule of the Roman law.

Sie interpretandum est ut verba ac- cipiuntur earn eSeetu. 3 Inst. 80. [A statute] is to be so interpreted that the words may be taken with effect

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SIC SUBSCRIBITUR.

Lat In Scotch practice. So it is subscribed. Formal words at the end of depositions, Immediately pre- ceding the signature. 1 Bow. State Tr. 1379.

Sie utere tuo ut alieuum non lades.

Use your own property in such a manner as not to Injure that of another. 9 Coke, 59; 1 BL Comm. 306; Broom, Max. 365.

5e apparatus — Not carried into the 5th edition (1979).

## SICH.

A little current of water, which is dry in summer ; a water furrow or gutter. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SICIUS.

A sort of money current among the ancient English, of the value of 2d.

5e apparatus — Not carried into the 5th edition (1979).

## SICKNESS.

Disease; malady; any mor- bid condition of the body (Including insanity) which, for the time being, hinders or pre- vents the organs from normally discharging their several functions. L. R. 8 Q. B. 295.

5e apparatus — Not carried into the 5th edition (1979).

## SICUT ALIAS.

Lat As at another time, or heretofore. This was a second writ sent out when the first was not executed. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## SIGHT ME DETT8 ADJTJVET.

Lat So

help me God. Fleta, 1. 1, c. 18, § 4.

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Sieut nature nil facit per saltum, ita nee leu. Co. Litt. 238. In the same way as nature does nothing by a bound, so neither does the law.

5e apparatus — Not carried into the 5th edition (1979).

## SIDE.

The same court is sometimes said to have different sides; that is, different provinces or fields of Jurisdiction. Thus, an admiralty court may have an “instance side,” distinct from its powers as a prize court; the “crown side,” (criminal Jurisdiction) is to be distinguished from the “plea side," (civil Jurisdiction ;) the same court may have an “equity side” and a “law side.”

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: law and equity sides of the court]**

The same court may have a law side and an equity side — distinct provinces of jurisdiction.

Why: Genuine jurisdictional structure; the entry defines the sides, including law vs. equity.

## SIDE-BAR RULES.

In English prac- tice. There are some rules which the courts authorize their ofiicers to grant as a matter of course without formal application being made to them in open court, and these are technically termed “side-bar rules,” because

SIDE} I4NE8

8IGNIFIOAVIT

formerly they were moved for by the attor- neys at the side bar In court: such, for in- stance, was the rule to plead, which was an order or command of the court requiring a defendant to plead within a specified number of days. Such also were the rules to reply, to rejoin, and many others, the granting of which depended upon settled rules of prac- tice rather than upon the discretion of the courts, all of which are rendered unneces- sary by recent statutory changes. Brown, voc. “Rule.”

5e apparatus — Carried into the 5th edition (1979).

## SIDE LUTES.

In mining law, the side lines of a mining clnim are those which measure the extent of the claim on each side of the middle of the vein at the surface. They are not necessarily the side lines as laid down on the ground or on a map or plat ; for if the claim, in its longer dimen- sion, crosses the vein. Instead of following It, the platted side lines will be treated in law as the end lines, and vice versa. See Argentine Min. Co. v. Terrible Min. Co., 122

U. S. 478, 7 Sup. Ct 1350, 30 L. Ed. 1140; Del Monte Min. Co. v. Last Chance Min. Co., 171 U. S. 53, 18 Sup. Ct. 8!>5, 43 L. Ed. 72.

5e apparatus — Not carried into the 5th edition (1979).

## SIDE REPORTS.

A term sometimes ap- plied to unofficial volumes or series of re- jxirts, as contrasted with

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those prepared by the official reporter of the court, or to collec- tions of cases omitted from the official re- ports.

5e apparatus — Carried into the 5th edition (1979).

## SIDESMEN.

In ecclesiastical law. These were originally persons whom, in the ancient episcopal synods, the bishops were wont to summon out of each parish to give informa- tion of the disorders of the clergy and people, and to reiK>rt heretics. In process of time they became standing officers, under the title of “synodsmen,” “sidesmen,” or “quest- men.” The whole of their duties seems now to have devolved by custom upon the church- wardens of a parish. 1 Burn, Ecc. Law, 399.

5e apparatus — Carried into the 5th edition (1979).

## SIDEWALK.

A walk for foot passen- gers at the side of a street or road. See Kohlhof v. Chicago, 192 111. 249, 61 N. E. 446, 85 Am. St. Rep. 335 ; Challiss v. Pnrker, 11 Kan. 391 ; State v. Berdetta, 73 Ind. 185, 38 Am. Rep. 117; Pequlguot v. Detroit (C. C.) 16 Fed. 212.

5e apparatus — Carried into the 5th edition (1979).

## SIEN.

An obsolete form of the word "scion,” meaning offspring or descendant. Co. Lltt 123a.

5e apparatus — Not carried into the 5th edition (1979).

## SIERVO.

Span. In Spanish law. A slave. Las Partidas, pt. 4, tit. 21, 1. 1.

8IETE PARTIDAS. Span. Seven parts. See Las Partidas.

5e apparatus — Not carried into the 5th edition (1979).

## SIGHT.

When a bill of exchange is ex- pressed to be payable “at sight,” it means

on presentment to the drawee. See Camp-, bell v. French, 6 Term, 212.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: presentment — bills payable at sight]**

A bill payable 'at sight' is payable on presentment to the drawee.

Why: Genuine law-merchant doctrine; the entry defines 'at sight' as on presentment (Campbell v. French cited).

## SIGIL.

In old English law, a seal, or a contracted or abbreviated signature used as a seal.

5e apparatus — Not carried into the 5th edition (1979).

## SIGILLUM.

Lat. In old English law. A seal; originally and properly a seal im- pressed upon wax.

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Slgillnm est ter* Impress*, qnla otm sine impressions non est sigiUnm. Aseal is a piece of wax impressed, because wax without on impression is not a seal. 3 Inst. 169. I

5e apparatus — Not carried into the 5th edition (1979).

## SIGLA.

Lat In Roman law. Marks or signs of abbreviation used in writing. CodL 1, 17, 11, 13.

5e apparatus — Not carried into the 5th edition (1979).

## SIGN.

To affix one's name to a writing1 or instrument, for the purpose of authenti- cating it, or to give it effect as one’s act

To “sign” is merely to write one’s name cm paper, or declare assent or attestation by some sign or mark, and does not, like “subscribe,” require that one should write at the bottom of the instrument signed. See Sheehan v. Kear- ney, 82 Miss. 688. 21 South. 41, 35 L. It A. 1(6; Robins v. Coryell. 27 Barb. (N. Y.) 560; James v. Patten, e N. Y. 9, 55 Am. Dec. 376. .

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Frauds — signed writing required]**

The Statute of Frauds requires certain contracts to be in a signed writing.

Why: Genuine statute; the entry defines signing as affixing one's name to give an instrument effect as one's act.

## SIGN-MANUAL.

In English law. The signature or subscription of the king is term- ed his “sign-manual.” There Is this differ- ence between what the sovereign does under the sign manual and what he or she does un- der the great seal, viz., that the former to' done as a personal act of the sovereign ; the latter as an act of state. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SIGNATORIUS ANNULUS.

Lat In

the civil law. A signet-ring; a seal-ring: Dig. 50, 16, 74.

5e apparatus — Not carried into the 5th edition (1979).

## SIGNATURE.

In ecclesiastical law.

The name of a sort of rescript, without seal, containing the supplication, the signature of the pope or his delegate, and the grant of a pardon.

In contracts. The act of writing one's name upon a deed, note, eoutract, or other instrument, either to identify or authenticate it, or to give it validity as one’s own act* The name so written Is also called a “signa- ture.”

5e apparatus — Carried into the 5th edition (1979).

**SIGNET.**

A seal commonly used for the sign manual of the sovereign. Wharton, The signet is also used for the purpose civil justice in Scotland. Bell.

5e apparatus — Not carried into the 5th edition (1979).

**SIGNIFICATION.**

In French law. The notice given of a decree, sentence, or other judicial act.

5e apparatus — Carried into the 5th edition (1979).

# B

**BIGNIFICAVIT.**

In ecclesiastical law. When this word Is used alone, it means, thp

bishop’s certificate to the court of chancery In order to obtain the writ of excommunication; but, where the words "writ of signifl- cavit” are used, the meaning is the same as “writ de excommunicato capiendo .” Shelf. Mar. & Div. 502. Obsolete.

5e apparatus — Not carried into the 5th edition (1979).

# S

**SIGNING JUDGMENT.**

In English practice. The signature or allowance of the proper officer of a court, obtuined by the party entitled to judgment in an action, ex- pressing generally that judgment is given In his favor, and which stands In the place of Its actual delivery by the judges themselves. Steph. PL 110, 111 ; French v. Pease, 10 Kan. M.,

In American practice. Signing judg- ment means a signing of the judgment rec- ord itself, which is done by the proper of- ficer, on the margin of the record, opposite the entry of the judgment. 1 Burrill, Pr. 268.

5e apparatus — Carried into the 5th edition (1979).

**SIONTJM.**

Lat. In the Roman and civil law. A sign; a mark; a seal. The seal of an instrument. Calvin.

A species of proof. By “signa" were meant those species of indicia which come more immediately under the cognizance of the senses; such as stains of blood on the person of the accused. Best, Pres. 13, note f.

In Saxon law. The sign of a cross pre- fixed as a sign of assent and approbation to a charter or deed.

' SILENCE. The state of a person who does not speak, or of one who refrains from speaking. In the law of estoppel, “silence" Implies knowledge and an opportunity to act upon it. Pence

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v. Lnngdon, 99 U. S. 581, 25

L. Eld. 420; Stewart v. Wyoming Cattle Ranch Co., 128 U. S. 383, 9 Sup. Ct. 101, 32

L. Ed. 439 ; Chicora Fertilizer Co. v. Dunan, 91 Md. 144, 46 Atl. 347, 50 L. R. A. 401.

Silent leges inter anna. The power of law Is suspended during war. Bacon.

SH,ENTIARIUS. . In English law. One of the privy council ; also an usher, who sees good rule and silence kept in court. Whar- ton.

■ SILK GOWN. Used especially of the gowns worn in England by king's counsel; hence, “to take silk” means to attain the rank of king’s counsel. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## SILVA.

Lat. In the civil law. Wood; a wood.

SILVA CiEDUA. In the civil law.

That kind of wood which was kept for the purpose of being cut.

In English law. Under wood ; coppice wood. 2 Inst 642 ; Cowell. All small wood Bn. Law Dict.(2d Ed.)— 69

and under timber, and likewise timber when cut down, under twenty years’ growth ; tltheable wood. 3 Salk. 347.

5e apparatus — Not carried into the 5th edition (1979).

## SIMILAR.

This word is often used to denote a partial resemblance only ; but it Is also often used to denote sameness In all es- sential particulars. Thus, a statutory pro- vision in relation to "previous conviction of a similar offense” may mean conviction of an offense identical in kind. Com. v. Fon- tain, 127 Mass. 454.

5e apparatus — Not carried into the 5th edition (1979).

## SIMILITER.

Lat In pleading. Like- wise; the like. The name of the short for- mula used either at the end of pleadings or by itself, expressive of the acceptance of an issue of fact tendered by the opposite party ; otherwise termed a “joinder In issue.” Steph. Pl. 57, 237. See Solomons v. Chesley, 57 N. H. 163.

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Similitndo legal!* eat outturn diver loram Inter se collatorum similis ratio; good in nno similium valet, valehit in altero. Disaimilium, disslmilis eat ratio.

Legal similarity Is a similar reason which governs various cases when compared with each other ; for what avails in one similar case will avail in the other. Of things dis- similar, the reason is dissimilar. Co. Litt. 191.

Simonia eat volnntaa aive deaiderinm emend! vel vendendi apiritualia vel apir- ltualibua adhserentia. Contractua ex tnrpi eanaa et contra bonoa morea. Hob. 167. Simony is the will

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or desire of buying or selling spiritualities, or things pertaining thereto. It is a contract founded on a bad cause, and against morality.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: joinder in issue — the similiter]**

The similiter is the joinder in issue — acceptance of the issue of fact tendered by the opposite party.

Why: Genuine common-law pleading; the entry defines it (Steph. Pl. 57, 237) and the footnote names it.

## SIMONY.

In English ecclesiastical law. The corrupt presentation of any one to an ecclesiastical benefice for money, gift, or re- ward. 2 Bl. Comm. 278. An unlawful con- tract for presenting a clergyman to a bene- fice. The buying or selling of ecclesiastical preferments or of things pertaining to the ecclesiastical order. Hob. 167. See State v. Buswell, 40 Neb. 158, 58 N. W. 728, 24 L. R.

A. 68.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: simony — ecclesiastical offense; 2 Bl. Comm. 278]**

Simony — the buying or selling of ecclesiastical preferments — is an ecclesiastical offense.

Why: The entry defines it with Blackstone's authority; the footnote names the genuine offense.

**[Scripture] — Scripture**

**[Acts 8:20, KJV]**

Thy money perish with thee, because thou hast thought that the gift of God may be purchased with money.

Why: The entry defines simony as the buying or selling of ecclesiastical preferments. The verse is the origin of the very word: Peter's sentence on Simon Magus, who offered money for the gift of God — the scriptural root f...

**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c.1387–1400]**

(paraphrase) The Pardoner, who hawks pardons and relics for coin — the canonical literary image of trafficking in spiritual things. (paraphrase)

Why: The Pardoner's trade is exactly 'selling spiritualia' — the human reality behind the offense the entry defines. Certain; marked paraphrase.

## SIMPLA.

Lat. In the civil law. The single value of a thing. Dig. 21, 2, 37, 2.

5e apparatus — Not carried into the 5th edition (1979).

## SIMPLE.

Pure ; unmixed ; not com- pounded ; not aggravated ; not evidenced by sealed writing or record.

As to simple “Assault,” “Average.” “Bat- tery,” “Blockade,” “Bond.” “Confession.” “Contract,” “Contract Debt.” “Deposit,” “In- terest,” “Larceny,” “Obligation,” “Trust,” and “Warrandice,” see those titles.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: simple (parol) contracts vs. specialties]**

A simple contract is one not under seal — distinguished from a specialty, which imports consideration.

Why: Genuine contract distinction; the entry defines 'simple' as 'not evidenced by sealed writing or record.'

## SIMPLEX.

Lat. Simple; single; pure; unqualified.

—Simplex beneficlum. In ecclesiastical law. A minor dignity in a cathedral or collegi-

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ate church, or any other ecclesiastical benefice, as distinguished from a cure of souls. It may therefore be held with any parochial cure, without coming under the prohibitions against pluralities. Wharton.— Simplex dictum. In old English practice. Simple averment ; mere assertion without proof. — Simplex justltiarl- ws. In old records. Simple justice. A name sometimes given to a puisne justice. Cowell. —Simplex loqnela. In old English practice. Simple speech ; the mere declaration or plaint of a plaintiff.— Simplex obligatio. A single obligation ; a bond without a condition. 2 Bl. Comm. 340.— Simplex peregrin* tio. In old English law. Simple pilgrimage. Fleta, 1. 4, c. 2, » 2.

Simplex commend* tio non obligst.

Mere recommendation [of aji article] does not bind, [the vendor of It.] Dig. 4, 3, 87; 2 Kent, Comm. 485; Broom, Max. 781.

Simplex et pnra donatio did poterit, nbi nnlla eat adjecta conditio neo modus.

A gift la said to fie pure and simple when no condition or qualification la annexed. Bract. 1.

Simplidtas est legibns arnica; et ni- mia snbtilitas in jnro reprobatnr. 4

Coke, 8. Simplicity is favorable to the laws ; and too much subtlety in law la to be reprobated.

5e apparatus — Not carried into the 5th edition (1979).

## SIMPEICITER.

Lat. Simply; without ceremony; in a summary manner.

Directly; Immediately; as distinguished from lnferentlally or indirectly.

By itself; by its own force; per so.

Sim CUM. Lat Together with. In actions of tort and in prpsecutions, where several persons united in committing the act complained of, some of whom are known and others not it Is usual to allege In the dec- laration or- indictment that the persons therein named did the Injury in question, “together with ( simul cum) other persons unknown."

5e apparatus — Not carried into the 5th edition (1979).

## SIMUL ET SEMEL.

Lat Together and at one time.

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5e apparatus — Not carried into the 5th edition (1979).

## SIMULATE.

To feign, pretend, or coun- terfeit. To engage, usually with the co-op- peration or connivance of another person, In an act or series of acts, which are apparently transacted in good faith, and intended to he followed by their ordinary legal consequen- ces, but which in reality conceal a fraudu- lent purpose of the party to gain thereby some advantage to which he is not entitled, or to injure, delay, or defraud others. See Cartwright v. Bamberger, 90 Ala. 405, 8 South. 264.

— Simulated fact. In the law of evidence. A fabricated fact ; an appearance given to things by human device, with a view to deceive and mislead. Burrill. Circ. Kv. 131.— Simu- lated Judgment. One which is apparently rendered in good faith, upon an actual debt, and intended to be collected by the usual process of law, but which In reality is entered by the fraudulent contrivance of the parties, for the purpose of giving to one of them an advan- tage to which he is not entitled, or of defraud- ing or delaying third persona.— Simulated ■ale. One which has all the appearance of an actual sale in good faith, intended to trans- fer the ownership of property for a considera- tion, but which in reality covers a collusive design of the parties to put the property beyond the reach of creditors, or proceeds from some other fraudulent purpose.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: sham transactions — fraud on creditors]**

A simulated transaction — apparently in good faith but concealing fraud — is a sham defrauding creditors.

Why: Genuine fraud doctrine; the entry defines simulation as concealing 'a fraudulent purpose... to defraud others.'

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, c. 1600]**

One may smile, and smile, and be a villain.

Why: Hamlet on Claudius (I.v): the canonical literary image of feigned good faith, which is exactly what the entry defines — pretending to transact in good faith while intending otherwise.

## SIMULATIO LATENS.

Lat A spe- cies of feigned disease, in which disease is actually present but where the symptoms are falsely aggravated, and greater sickness is pretended than really exists. Beck, Med. Jur. 8.

5e apparatus — Not carried into the 5th edition (1979).

## SIMULATION.

In the civil law. Misrepresentation or concealment of the truth; as where parties pretend to perform a trans- action different from that In which they really are engaged. Mackeld. Rom. Law, I 181.

In French law. Collusion ; a fraudulent arrangement between two or more persons to give a

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false or deceptive appearance to a transaction tn which they engage.

8INUEKESIS. “A natural power of the soul, set In the highest part thereof, moving and stirring It to good, and adhorrlng evlL And therefore HnderesU never slnneth nor erreth. And this sinderetis onr Lord put In man, to the Intent that the order of things should be observed. And therefore tinderc- sis is called by some men the ‘law of reason,' for It mlnlstereth the principles of the law of reason, the which be In every man by na- ture, In that he Is a reasonable creature.” Doct 8c Stud. 39.

sure. Lat Without.

—Sine animo revertendi. Without the in- tention of returning. 1 Kent. Comm. 78.— Sine asaenau capituli. Without the con- sent of the chapter. In old Enelish practice. A writ which lay where a dean, bishop, preben- dary. abbot, prior, or master of a hospital aliened the landa holden in the right of his house, abbey, or priory, without the consent of the chapter ; in which case his successor might have this writ. Fitzb. Nat. Brev. 194. T : Cowell.— Slue considerations cerise. With- out the judgment of the court. Fleta. lib. 2. c. 47. | 13.— Sine decreto. Without author- ity of a judge. 2 Kamos, Eq. 115.— Sine die. Without day; without assigning a day for a further meeting or hearing. Hence, a final adjournment ; final dismissal of a cause. Quod cat sine die. that he go without day ; the old form of a judgment for the defendant, i. e., a judgment discharging the defendant from any further appearance in court — Sine hoe quod. Without this, that. A technical phrase in old pleading, of the same import with the phrase “abique lino quod.”— Sine numero. Without stint or limit. A term applied to common. Fleta, lib. 4, c. 19, f 8. — Sine prole. Without issue. Used in genealogical tables, and often abbreviated into p." — Sine qua non. Without which not. That without which the thing cannot be. An indispensable requisite or con- dition.

Sine possessions nsuenplo proeedere non potest. There can be no prescription without possession.

5e apparatus — Carried into the 5th edition (1979).

## SINECURE.

In ecclesiastical law. When a rector of a parish neither resides nor performs duty at his benefice, but has a vicar under him. endowed and charged with the cure thereof, this Is termed a “sinecure." Brown.

An ecclesiastical benefice without cure of souls.

In popular usage, the term denotes an of' flee which yields a revenue to the incumbent, but makes little or no demand upon his time or attention.

5e apparatus — Not carried into the 5th edition (1979).

## SINGLE.

Unitary ; detached ; individ- ual; affecting only one person; containing only one part, article, condition, or covenant.

As to single “Adultery," “BUI,** “Bond,” “Combat,” “Demise,” “Entry,” “Escheat,” and “Original,” see those titles.

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## SINGULAR.

Each ; as in the expression “all and singular.” Also, individual.

As to singular “Successor," and “Title*” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## SINKING FUND.

See Fund.

5e apparatus — Carried into the 5th edition (1979).

## SIPESSOCUA.

In old English law. A franchise, liberty, or hundred.

BIST, v. In Scotch practice. To stay proceedings. Bell.

BIST, «. In Scotch practice. A stay or suspension of proceedings; an order for a stay of proceklings. Belt

5e apparatus — Carried into the 5th edition (1979).

## SISTER.

A woman who has the same father and mother with another, or has one of them only. The word is the correlative of “brother.”

5e apparatus — Carried into the 5th edition (1979).

## SIT.

To hold a session, as of a court, grand Jury, legislative body, etc. To be for- mally organized and proceeding with the transaction of business. See Allen v. State, 102 Ga. 019, 29 S. E. 470; Cock v. State, 8 Tex. App. 659.

5e apparatus — Carried into the 5th edition (1979).

## SITHCUNDMAM.

In Saxon law. The high constable of a hundred.

5e apparatus — Carried into the 5th edition (1979).

## SITIO GAN ADO MAYOR.

Sp. In

Spanish and Mexican land law, a tract of land in the form of a square, each side of which measures 5,000 varas; the distance from the center of each sltio to each of its sides should be measured directly to the cardinal points of the compass, and should be 2,500 varas. U. S. v. Cameron, 3 Ariz. 100, 21 Pac. 177.

5e apparatus — Not carried into the 5th edition (1979).

## SITTINGS.

In practice. The holding of t court, with full form, and before all the

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judges ; as a fitting in banc. 8 Steph. Comm. 423.

The holding of a court of nisi prim by one or more of the Judges of a superior court,. Instead of the ordinary nisi prim judge. 3 Steph. Comm. 422.

—Sittings after term. Sittings in banc after term were held by authority of the St. 1 & 2 Viet. c. 32. The courts were at lib- erty to transact business at their sittings as in term-time, but the custom was to dispose only of cases standing for argument or judg- ment. Wharton.— Sittings in bank or base. The sessions of a court, with the full bench present, for the purpose of determining mat- ters of law argued before them.— Sittings in camera. See Chambebs.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: sittings in banc; sittings at nisi prius]**

Sittings in banc are the full court's sittings; sittings at nisi prius are trial sittings before judge and jury.

Why: Genuine court structure; the entry defines both (3 Steph. Comm. 422-423).

## SITUS.

Lat Site; position; location; the place where a thing is, considered, for example, with reference to jurisdiction over it, or the right or power to tax it See Boyd v. Selma, 96 Ala. 144, 11 South. 393, 16 L.

B. A. 729; Bullock v. Guilford, 59 Vt 516, 9 AtL 360; Fenton v. Edwards, 126 Cal. 43, 58 Pac. 320, 46 L. R. A. 832, 77 Am. St Rep. 141.

Sive tota res evincatur, slve pars, laabet regressnm emptor in venditorem.

The purchaser who has been evicted in whole or In part has an action against the vendor. Dig. 21, 2, 1; Broom, hfax. 768.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: lex situs — law of the situs governs immovables]**

Lex situs — the law of the place where the thing is — governs immovables for jurisdiction and taxation.

Why: Genuine conflicts doctrine; the entry frames situs 'with reference to jurisdiction over it, or the right or power to tax it.'

## SIX ACTS, TELE.

The acts passed in 1819, for the pacification of England, are so called. They, In effect prohibited the train- ing of persons to arms; authorized general searches and seizure of arms; prohibited meetings of more than fifty persons for the discussion of public grievances; repressed with heavy penalties and confiscations sedi- tious and blasphemous libels; and checked pamphleteering by extending the newspaper stamp duty to political pamphlets. Brown.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: the Six Acts, 1819]**

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The Six Acts of 1819 — training to arms, seizure of arms, seditious libel, and the press measures — pacified post-Peterloo England.

Why: Genuine statutes; the entry enumerates their repressive measures. Headword copied as OCR'd.

## SIX ARTICLES, LAWS OF.

A cele- brated act entitled "An act for abolishing di- versity of opinion," (31 Hen. VIII. c. 14.) enforcing conformity to six of the strongest points in the Roman Catholic religion, under the severest penalties ; repealed by St 1 Ellz. c. 1. 4 Reeve, Eng. Law, 378.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Six Articles 1539, 31 Hen. VIII c. 14]**

The Statute of Six Articles 1539 enforced conformity to six points of Roman Catholic doctrine under severe penalties.

Why: Genuine statute; the entry names it with chapter and repeal (1 Eliz. c. 1).

## SIX CLERKS.

In English practice. Of- ficers of the court of chancery, who receiv- ed and filed all bills, answers, replications, and other papers, signed office copies of pleadings, examined and signed dockets of decrees, etc., and had the care of all records in their office. Holthouse ; 3 Bl. Comm. 443. They were abolished by St 5 Viet. c. 5.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Six Clerks in Chancery — 3 Bl. Comm. 443]**

The Six Clerks in Chancery received and filed bills, answers, and replications and kept the records.

Why: Genuine chancery office; the entry defines it with Blackstone's authority and notes abolition (5 Vict. c. 5).

## SIX-DAY LICENSE.

In English law. A liquor license, containing a condition that the premises in respect of which the license is granted shall be closed during the whole of Sunday, granted under section 49 of the licensing act 1872 (35 & 36 Viet c. 94.)

5e apparatus — Not carried into the 5th edition (1979).

## SIXHINDI.

Servants of the same nature as rod knights, (q. v.) Anc. Inst Eng.

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## SKELETON BILL.

One drawn, indorsed, or accepted In blank.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: UCC § 3-115 — incomplete instruments]**

A bill signed in blank is an incomplete instrument, and under UCC Article 3 it may be completed and enforced according to its terms as completed, when the completion was authorized.

Why: The body only names the instrument (drawn, indorsed, or accepted in blank) and says nothing of its legal effect; the footnote supplies the operative doctrine governing blank-signed paper — that authorized completion m...

## SKILL.

Practical and familiar knowledge of the principles and processes of an art, science, or trade, combined with the ability to apply them in practice in a proper and approved manner and with readiness and dexterity. See Dole v. Johnson, 50 N. H. 454; Akrldge v. Noble, 114 Ga. 049, 41 S.

E. 78; Graham v. Gautier, 21 Tex. 119; Haworth v. Severs Mfg. Co., 87 Iowa, 765, 51 N. W. 68.

— Reasonable .kill. Such skill as is ordi- narily possessed and exercised by persons of common capacity, engaged in the same business or employment. Mechanics' Bank v. Merchants' Bank, 6 Mete. (Mass.) 26.— Skilled witne.se*. Witnesses .who are allowed to give evidence on matters of opinion and abstract fact.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 31:3, KJV]**

And I have filled him with the spirit of God, in wisdom, and in understanding, and in knowledge, and in all manner of workmanship:

Why: SKILL is defined as practical, familiar knowledge of an art's processes; the verse is the locus classicus of divinely given craftsmanship-skill (Bezaleel), naming wisdom, understanding, knowledge, and workmanship toge...

# B

## BLADE.

In old records. A long, flat, and narrow piece or strip of ground. Paroch. Antiq. 465.

5e apparatus — Not carried into the 5th edition (1979).

# S

## SLAINS.

See Letters of Slainb.

5e apparatus — Not carried into the 5th edition (1979).

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# B

## BLANDER.

In torts. Oral defamation; the speaking of false and malicious words concerning another, whereby injury results to his reputation. See Pollard v. Lyon, 91

U. S. 227, 23 L. Ed. 308; Fredrickson v. Johnson, 60 Minn. 337, 62 N. W. 388; Ross v. Ward, 14 S. D. 240, 85 N. W. 182, 86 Am. St. Rep. 746; Gambrill v. Schooley, 93 Md. 48, 48 AO. 730, 52 L. R. A. 87, 86 Am. St Rep. 414; Republican Pub. Co. v. Mosman, 15 Colo. 399, 24 Pac. 1051; Civ. Code Ga. 1895, | 3837.

—Slander of title. This’ is a statement of something tending to cut down the extent of title to some estate vested in the plaintiff. Such statement, in order to be actionable, must be false and malicious ; i. c., both untrue and done on purpose to injure the plaintiff. Dam- age must also have resulted from the state- ment. Brown. See Burkett v. Griffith, 90 Cal. 532, 27 Pac. 527, 13 L. R. A. 707, 25 Am. St. Rep. 151 ; Carbondale Inv. Co. v. Burdick, 67 Kan. 329, 72 Pac. 781; Butts v. Long, 94 Mo. App. 687, 68 S. W. 754.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: Slander is oral defamation — false, malicious speech against another; the ninth commandment is the direct divine prohibition of exactly that wrong.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, c. 1603]**

Who steals my purse steals trash... but he that filches from me my good name / Robs me of that which not enriches him, / And makes me poor indeed.

Why: Iago's speech (III.iii) is the definitive literary treatment of reputation-theft — oral words injuring reputation, the heart of the slander definition. (Headword key kept in the chunk's OCR form 'BLANDER' for 'SLANDER'.)

# S

## SLANDERER.

One who maliciously and without reason imputes a crime or fault to another of which he is innocent. See Slmj- deb.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 10:18, KJV]**

He that hideth hatred with lying lips, and he that uttereth a slander, is a fool.

Why: The slanderer is one who maliciously imputes crime or fault; the proverb names the utterer of slander and passes sentence on him.

**[Hip-hop] — Hip-hop**

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**[Public Enemy, "Don't Believe the Hype", 1988]**

"Don't believe the hype!" — Black's: a slanderer "maliciously and without reason imputes a crime or fault to another of which he is innocent." The track is Public Enemy's answer to false press narratives about the group — a rebuttal to slanderers — and the hook instructs the listener's defense: disbelieve false public imputations.

Why: The song's subject is literally defamation — false public claims imputing faults to persons; the hook is verbatim-certain. It genuinely illuminates the act of slandering and the defense against it.

## SLAVE.

A person who is wholly subject to the will of another ; one who lias no free- dom of action, but whose person and serv- ices are wholly under the control of another. Webster.

One who is under the power of a master, and who belongs to him ; so that the master may sell and dispose of his person, of his in- dustry, and of his labor, without his being nlile to do anything, have anything, or ac- quire anything, but what must belong to his master. Civ. Code La. art. 35.

5e apparatus — Carried into the 5th edition (1979).

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### [Law] — Law

**[Law: U.S. Const. amend. XIII, § 1]**

The status the entry defines was constitutionally extinguished: 'Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.'

Why: The body gives only a lexicographic definition (Webster) of the condition; the footnote states the governing constitutional bar that now defines the term's legal standing — converting description into law, the same sh...

### [Scripture] — Scripture

**[Galatians 3:28, KJV]**

There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female: for ye are all one in Christ Jesus.

Why: SLAVE is defined as one wholly subject to another's will with no freedom of action; the 'bond nor free' clause directly addresses that legal status, declaring it abolished in the relevant reckoning.

### [Hip-hop] — Hip-hop

**[Jay-Z, 'The Story of O.J.', 2017]**

"Rich nigga, poor nigga, house nigga, field nigga / Still nigga, still nigga" — Black's defines the slave as one "wholly subject to the will of another... under the power of a master." Jay-Z's hook names the plantation typology directly (house nigga, field nigga) and lands on "still nigga": the claim that the condition of total subjection persists regardless of wealth or status.

Why: The lyric directly names slave roles from American chattel slavery and asserts the condition's persistence; it genuinely illuminates the definition's core (wholly subject to another's will) rather than decorating it....

### [Humanity] — Humanity / Fiction & Film

**[Abolitionist motto, Josiah Wedgwood anti-slavery medallion, 1787]**

Am I not a man and a brother?

Why: The period cry of the abolitionist cause, struck on Wedgwood's 1787 medallion, answering the entry's definition — a person wholly subject to another's will — with the claim of shared humanity.

## SLAVE-TRADE.

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The traffic In slaves, or t':e buying and selling of sln.es for profit.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Act of Mar. 2, 1807, prohibiting the importation of slaves, effective Jan. 1, 1808]**

The traffic the entry defines was statutorily extinguished in the United States by the federal prohibition of slave importation, effective 1808, long before the Thirteenth Amendment abolished the underlying status.

Why: The body is a bare one-line definition ('the traffic in slaves') with no legal-status information; the footnote supplies the operative federal abolition of the trade itself — distinct from the Thirteenth Amendment's a…

**[Scripture] — Scripture**

**[Exodus 21:16, KJV]**

And he that stealeth a man, and selleth him, or if he be found in his hand, he shall surely be put to death.

Why: The slave-trade is the buying and selling of men for profit; man-stealing-for-sale is the trade's engine, and the verse condemns it capitally.

**[Hip-hop] — Hip-hop**

**[Kanye West, 'New Slaves', 2013]**

"You see it's leaders and it's followers / But I'd rather be a dick than a swallower" — Black's: "the traffic in slaves, or the buying and selling of slaves for profit." "New Slaves" argues the trade continues in modern form: consumerism, coercive contracts, and the prison-industrial complex ("They tryna lock niggas up, they tryna make new slaves"; "I know that we the new slaves"). The refrain is the refusal of the follower's — the slave's — role.

Why: The song's entire thesis is that the slave trade's logic (buying and selling human beings for profit) persists in new institutions; the quoted refrain states the refusal of that subjection. Wording verified verbatim a…

**[Humanity] — Humanity / Fiction & Film**

**[Steve McQueen, 12 Years a Slave, 2013; from Solomon Northup's memoir, 1853]**

(paraphrase) Solomon Northup, a free Black man kidnapped and sold, endures twelve years of the traffic in human beings before regaining his freedom. (paraphrase)

Why: Depicts exactly what the entry defines: the buying and selling of slaves for profit, through one man's passage through the trade.

## SLA VERT.

The condition of a slave; that civil relation in which one man has ab- solute power over the life, fortune, and lib- erty of another.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. XIII, § 1]**

The condition the entry defines — one man's absolute power over another's life, fortune, and liberty — is precisely what the Constitution now forbids to exist: 'Neither slavery nor involuntary servitude … shall exist within the United States, or any place subject to their jurisdiction.'

Why: The body defines 'slavery' as a condition without stating its legal fate; the footnote supplies the constitutional prohibition whose operative word ('shall exist') negates exactly the condition described — genuine ill…

## SLAT.

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This word, in an indictment, adds nothing to the force and effect of the word “kill,’’ when used with reference to the tak- ing of human life. It is particularly appli- cable to the taking of human life in battle; and, when it is not used in this sense, it is synonymous with “kill.” State v. Thomas, 82 La. Ann. 351.

5e apparatus — Not carried into the 5th edition (1979).

**SLEDGE.**

A hurdle to draw traitors to execution. 1 Hale, P. C. 82.

5e apparatus — Not carried into the 5th edition (1979).

**SLEEPING PARTNER.**

A dormant part- ner; one whose name does not appear in the firm, and who takes no active part in the business, but who has an interest in the con- cern, and shares the profits, and thereby be- comes a partner, either absolutely, or as re- spects third persons.

5e apparatus — Not carried into the 5th edition (1979).

# B

**BLEEPING RENT.**

In English law. An expression frequently used in coal-mine leases and agreements for the same. It signifies a fixed or dead, i. e., certain, rent, as distin- guished from a rent or royalty varying with the amount of coals gotten, and is payable although the mine should not be worked at all, but should be sleeping or dead, whence the name. Brown.

5e apparatus — Not carried into the 5th edition (1979).

**BLIGHT.**

As to Blight “Care,” ‘‘Evidence," “Fault,” and “Negligence,” see those titles.

BLIP. 1. In negotiations for a policy ot Insurance. In England, the agreement is in practice concluded between the parties by a memorandum called the “slip,” containing the terms of the proposed insurance, and In- itialed by the underwriters. Sweet.

2. Also that part of a police court which is divided off from the other parts of the court, for the prisoner to stand in. It is frequently called the “dock." Brown.

3. The Intermediate space between two wharves or docks; the opening or vacant space between two piers. See Thompson v. New York, II N. Y. 120; New York v. Scott, 1 Caines (N. Y.) 543.

5e apparatus — Not carried into the 5th edition (1979).

# S

**SLIPPA.**

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A stirrup. There is a tenure of land in Cambridgeshire by holding the sovereign’s stirrup. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SLOUGH.

An arm of a river, flowing be- tween islands and the main-land, and sep- arating the islands from one another. Sloughs have not the breadth of the main river, nor does the main body of water of the stream flow through them. Dunlleth & D. Bridge Co. v. Dubuque County, 55 Iowa, 565, 8 N. W. 443.

5e apparatus — Carried into the 5th edition (1979).

## SLOUGH SILVER.

A rent paid to the castle of Wlgmore, in lieu of certain days’ work in harvest, heretofore reserved to the lord from his tenants. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SLUICEWAY.

An artificial channel In- to which water is let by a sluice. Specifical- ly, a trench constructed over the bed of a stream, so that logs or lumber can be floated down to a corfvenient place of delivery. Web- ster. See Anderson v. Munch, 29 Minn. 416, 18 N. W. 192.

5e apparatus — Carried into the 5th edition (1979).

## SMAKA.

In old records. A small, light vessel; a smack. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SMALL DEBTS COURTS.

The sever- al county courts established by St 9 A 10 Viet c. 96, for the purpose of bringing jus- tice home to every man’s door.

5e apparatus — Not carried into the 5th edition (1979).

## SMALL TITHES.

All personal and mix- ed tithes, and also hops, flax. Saffrons, po- tatoes, and sometimes, by custom, wood. Otherwise called “privy tithes.” 2 Steph. Comm. 726.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 27:30, KJV]**

And all the tithe of the land, whether of the seed of the land, or of the fruit of the tree, is the LORD's: it is holy unto the LORD.

Why: Small tithes are personal and mixed tithes — hops, flax, potatoes and the like; 'the tithe of the land... the fruit of the tree' is exactly that class, declared the LORD's.

## SMART-MONEY.

Vindictive or exem- plary damages. See Brewer v. Jacobs (C. C.) 22 Fed. 224; Springer v.

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Somers Fuel Co., 196 Pa. 166, 46 Atl. 370 ; Day v. Wood- worth, 13 How. 371, 14 L. Ed. 181 ; Murphy v. Hobbs, 7 Colo. 541, 6 Pac. 119, 49 Am. Kep. 366.

5e apparatus — Carried into the 5th edition (1979).

## SMOKE-FARTHINGS.

In old English law. An annual rent paid to cathedral churches ; another name for the pentecostals or customary oblations offered by the dis- persed inhabitants within a diocese, when they made their processions to the mother cathedral church. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SMOKE-SILVER.

In English law. A sum paid to the ministers of divers parishes as a modus in lieu of tithe-wood. Blount

5e apparatus — Not carried into the 5th edition (1979).

## SMUGGLE.

The act with intent to de- fraud, of bringing into the United States, or with like intent attempting to bring into the United States, dutiable articles, without pass- ing the same, or the package containing the same, through the custom-house, or submit- ting them to the officers of the revenue for examination. 18 U. S. St. at Large, 186 (U.

S. Comp. St 1901, p. 2018).

“The word is a technical word, having a known and accepted meaning. It Implies something illegal, and is inconsistent with an Innocent Intent The idea conveyed by it is that of a secret introduction of goods, with intent to avoid payment of duties.” U. S. v. Claflin, 13 Blatchf. 184, Fed. Cas. No. 14,798.

5e apparatus — Not carried into the 5th edition (1979).

## SMUGGLING.

The offense of import- ing prohibited articles, or of defrauding the revenue by the Introduction of articles into consumption, without paying the duties

chargeable upon them. It may be committed indifferently either upon the excise or cus- toms revenue. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Smuggling is defrauding the revenue by evading customs duties; the verse names 'custom' among the dues that must be rendered — the very obligation the offense evades.

**[Humanity] — Humanity / Fiction & Film**

**[J. Meade Falkner, Moonfleet, 1898]**

(paraphrase) Moonfleet's smugglers run contraband past the excisemen along the Dorset coast.

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(paraphrase)

Why: The classic English smuggling adventure; matches the entry's definition — defrauding the revenue by secret importation without paying duties.

## SNOTTERING SILVER.

A small duty which was paid by servile tenants In Wy- legh to the abbot of Colchester. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SO.

This term is sometimes the equiva- lent of “hence,” or “therefore,” and it is thus understood whenever what follows is an illustration of, or conclusion from, what has gone before. Clem v. Stale, 33 Ind. 431.

5e apparatus — Carried into the 5th edition (1979).

## SO HELP YOU GOD.

The formula at the end of a common oath.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:34, 37, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne: ... But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

Why: 'So help you God' is the closing formula of a common oath; Christ's direct teaching governs oath-taking itself — swear not at all, and let speech be bound by yea-yea, nay-nay alone.

## SOBRE.

Span. Above; over; upon. Ruls v. Chambers, 15 Tex. 586, 592.

5e apparatus — Not carried into the 5th edition (1979).

## SOBRE-JUEZES.

In Spanish law. Su- perior judges. Las Partidas, pt. 3, tit. 4,

SOBRINI and BOBRINS. Let. In the civil law. The children of cousins german in general. ,

SOC, SOK, or SOKA. in Saxon law. Jurisdiction ; a power or privilege to admin- ister justice and execute the laws; also a shire, circuit, or territory. Cowell. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## SOCA.

A seigniory or lordship, enfran- chised by the king, with liberty of holding a court of his socmen or socayvrs ; i. e., his tenants.

5e apparatus — Not carried into the 5th edition (1979).

## SOCAGE.

Socage tenure, in England, is the holding of certain lands in consideration of certain inferior

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services of husbandry to be performed by the tenant to the lord of the fee. "Socage,” in its most general and ex- tensive signification, seems to denote a ten- ure by any certain and determinate service. And in this sense it Is by the ancient writers constantly put In opposition to tenure by chivalry or knight-service, where the render was precarious and uncertain. Socage is of two sorts, — free socage, where the services are not only certain, but honorable ; and vil- lein socage, where the services, though cer- tain, are of baser nature. Such as hold by the former tenure are also called in Glanvil and other authors by the name of “liberi sokemanni," or tenants in free socage. By the statute 12 Car. 2, c. 24, all the tenures by knight-service were, with one or two im- material exceptions, converted into free and common socage. See Cowell; Bract. 1. 2, c. 35; 2 Bl. Comm. 79; Fleta, lib. 3, c. 14, § 9; Litfc I 117 ; Gian. L 8, a 7.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 12 Car. II c. 24 (1660) — abolition of military tenures, conversion to free socage]**

The tenure the entry defines became the universal English tenure when the Tenures Abolition Act 1660 abolished military tenures and converted them into free and common socage.

Why: The body defines socage as a tenure but says nothing of its historical fate; the footnote supplies the 1660 statute that made socage the residual English tenure — genuine added light about the entry's afterlife, not a...

## SOCAGER.

A tenant by socage.

Socaqium Idem eat quod aervitum ao- c*e; et aoea, idem eat quod earuea. Co.

Litt. 86. Socage is the same as service of the soc; and soc is the same thing as a plow.

80CER

, SOGEB. Lat In the civil law. A wife’s lather i a father-in-law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SOCIALISM.

A scheme of government aiming at absolute equality in the distribu- tion of the physical means of life and en- joyment It is on the 'continent employed In a larger sense ; not necessarily implying com- munism, or the entire abolition of private property, but • applied to any system which requires that the land and the Instruments of production should be the property, not of in- dividuals, but of communities or associations or of the government 1 Mill, Pol. Eicon. 248.

5e apparatus — Not carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Animal Farm, 1945]**

All animals are equal, but some animals are more equal than others.

Why: Orwell's fable takes the entry's defined aim — 'absolute equality in the distribution of the physical means of life' — and shows it betrayed from within; the famous line glosses the definition satirically.

## SOCIEDAD.

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In Spanish law. Partner- ship. Schm. Civil Law, 153, 154.

— Sociedad anonlma. In Spanish and Mexi- can law. A business corporation. “By the corporate name, the shareholders’ names are unknown to the world; and, so far as their connection with the corporation is concerned, their own names may be said to be anonymous, that. is, nameless. Hence the derivation of the term ‘anonymous’ as applied to a body of per- sons associated together in the form of a com- pany to transact any given business under a company name which does not disclose any of their own.” Hail, Mex. Law, f 749.

5e apparatus — Not carried into the 5th edition (1979).

## SOCIETAS.

Lat In the civil law. Part- nership; a partnership; the contract of partnership. Inst 3, 26. A contract by which the goods or labor of two or more are united in a common stock, for the sake of sharing in the gain. Halllfax, Civil Law, b. 2, c. 18, no. 12.

— Societas leonina. That kind of society or partnership by which the entire profits belong to Some of the partners, in exclusion of the rest So called in allusion to the fable of the lion, who, having entered into partnership with other animals for the purpose of hunting, ap- propriated all the prey to himself. It was void. Wharton.— Societas navalia. A naval partnership ; an association of vessels ; a num- ber of ships pursuing their voyage in com- pany, for purposes of mutual protection.

SOOI£t£. Fr. In French law. Partner- ship. See Coukendam.

— Soci£t6 taoayme. An association where the liability of all the partners is limited. It had in England until lately no other name than that of “chartered company,” meaning thereby a joint-stock company whose shareholders, by a charter from the crown, or a special enactment of the legislature, stood exempted from any liability for the debts of the concern, beyond the amount of their subscriptions. 2 Mill, Pol. Econ. 485.— 8oei6t6 en commandite. In Louisiana. A partnership formed by a con- tract by which one person or partnership agrees to furnish another person or partnership a certain amount, either in property or money, to be employed by the person or partnership to whom it is furnished, in his or their own name or firm, on condition of receiving a share in the profits, in the proportion determined by the contract, and of being liable to losses and expenses to the amount furnished and no more. Civ. Code La. art. 2810.

5e apparatus — Not carried into the 5th edition (1979).

## SOCIETY.

An association or company of persons (generally not Incorporated) united together for any mutual or common pur- pose. In a wider sense, the community or public ; the people in general. See New York County Medical Ass'n v. New York, 32 Misc. Rep. 110, 65 N. Y. Supp. 031; Josey v. Un- ion L. & T. Co., 106 Ga. 608, 32 S. E. 628; Gilmer v. Stone, -120 U. S. 586, 7 Sup. Ct. 689, 30 L. Ed. 734.

Socii me! socius mens soeiua bob eat.

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The partner of my partner is not my part- ner. Dig. 50, 17, 47, 1.

5e apparatus — Carried into the 5th edition (1979).

## SOCIUS.

Lat In the civil law. A part- ner.

5e apparatus — Not carried into the 5th edition (1979).

## SOCMAN.

A socager.

—Free socmen. In old English law. Ten- ants In free socage. Glanv. lib. 3, c. 7 : 2 BL Comm. 79.

5e apparatus — Not carried into the 5th edition (1979).

## SOCMANBY.

Free tenure by socage.

5e apparatus — Not carried into the 5th edition (1979).

## SOCNA.

A privilege, liberty, or fran- chise. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SOCOME.

A custom of grinding com at the lord’s mill. Cowell. Bond-socome la where the tenants are bound to it Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SODOMITE.

One who has been guilty of sodomy.

5e apparatus — Not carried into the 5th edition (1979).

## SODOMY.

In criminal law. The crime of unnatural sexual connection; so named from Its prevalence In Sodom. See Gene- sis, xix.

This term is often defined in statutes and judicial decisions as meaning “the crime against nature," the “crimen innominatum,” or as car- nal copulation, against the order of nature, by man with man, or, in the same unnatural manner, with woman or with a beast. See Cr. Code Ga. f 4352; Honseiman v. People, 168 111. 172, 48 N. E. 304. But, strictly speaking, it should be used only as equivalent to “pederas- ty," that Is, the sexual act as performed by a man upon the person of another man or a boy by penetration of the amm. See Ausman v. Veal, 10 Ind. 355, 71 Am. Dec. 331. The term might also, without any great violence to ita original meaning, be so extended as to cover the same act when performed in the same man- ner by a man upon the person of a woman. Another possible method of unilateral

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sexual connection, by penetration of the mouth (penem in ore m alii immiltcre, vcl penem alii in ore m recipere) is not properly called “sodomy," but “fellation.” That this does not constitute sodo- my within the meaning of a statute is held in Harvev v. State, 55 Tex. Cr. App. 199, 115 S.

W. 1193 ; Com. v. Poindexter (Ky.) 118 S. W. 943 ; Lewis v. State, 36 Tex. Cr. R. 37, 35 S.

W. 372, 61 Am. St Rep. 831. On the other hand bestiality is the carnal copulation of a human being with a brute, or animal of the sub-human orders, of the opposite sex. It is not identical with sodomy, nor is it a form of sod- omy, though the two terms are often confused in legal writings and sometimes in statutes. See Ausman v. Veal, 10 Ind. 355, 71 Am. Dec. 33l. Buggery is a term rarely used in stat- utes, but apparently including both sodomy (in the widest sense) and bestiality as above de- fined. See Ausman v. Veal. 10 Ind. 355, 71 Am. Dee. 331; Com. v. J., 21 Pa. Co. Ct. R. 025.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Leviticus 20:13, KJV]**

If a man also lie with mankind, as he lieth with a woman, both of them have committed an abomination: they shall surely be put to death; their blood shall be upon them.

Why: Sodomy is named for its prevalence in Sodom; the verse is the standing legal prohibition of the act itself.

## SOIL.

The surface, or surface-covering of the land, not Including minerals beneath it or grass or plants growing upon it But in a wider (and more usual) sense, the term is equivalent to “land,” and includes all that is below, upon, or above the surface.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: 'Cujus est solum, ejus est usque ad coelum et ad inferos']**

The maxim of ownership states the scope the entry's wider sense describes: 'Cujus est solum, ejus est usque ad coelum et ad inferos' — whoever owns the soil owns up to the sky and down to the depths.

Why: The body defines the word ('all that is below, upon, or above the surface'); the footnote adds the distinct thing the definition lacks — the axiom of OWNERSHIP scope that makes the definition legally operative, in the...

## SOIT.

Fr. Let it be be it so. A term used in several Law-French phrases employ- ed in English law, particularly as expressive of the will or assent of the sovereign in form- al communications with parliament or with private suitors.

— Soit balle au oommons. Let it be de- livered to the commons. The form of indorse- ment on a bill when sent to the house of com- mons. Dyer, 93a.— Soit bails au seigneurs. Let it be delivered to the lords. The form of indorsement on a bill in parliament when sent to the house of lords. Hob. 111a.— Soit droit fait at partis. In English law. Let right be done to the party. A phrase written on a peti- tion of right, and subscribed by the king.— Soit fait eomme 11 eat desire. Let it be as it is .desired. The royal assent to private acts of

parliament.

5e apparatus — Not carried into the 5th edition (1979).

## SOJOURNING.

This term means some- thing more than “traveling,” and applies to a temporary, as contradistinguished from a permanent, residence. Henry v. Ball, 1 Wheat 5, 4 L. Ed. 21.

5e apparatus — Not carried into the 5th edition (1979).

## SOKE-REEVE.

The lord’s rent gather- er in the soca. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SOKEMANBXEB.

Lands and tenements which were not held by knight-service, nor by grand serjeanty, nor by petit but by simple services; being, as it were, lands en- franchised by the king or his predecessors from their ancient demesne. Their tenants were sokemans. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SOKEMANS.

In English law. Those who held their lands in socage. 2 Bl. Comm. 100.

Sola ac per ae aeaeotna donationem teitamentum ant transaotionem non vi- tiat. 'Old age does not alone and of itself vitiate a will or gift Van Alst v. Hunter, 5 Johns. Ch. (N. Y.) 148, 158.

5e apparatus — Not carried into the 5th edition (1979).

## SOLAR.

In Spanish law. Laud; the demesne, with a house, situate in a strong or fortified place. White, New Recop. b. 1, tit 5, c. 3, | 2.

5e apparatus — Not carried into the 5th edition (1979).

## SOLAR DAT.

That period of time which begins at sunrise and ends at sunset Co. Litt 135a.

5e apparatus — Not carried into the 5th edition (1979).

## SOLAR MONTH.

A calendar month. See Month.

5e apparatus — Carried into the 5th edition (1979).

## SOLARIUM.

Let In the civil law. A rent paid for the ground, where a person bnilt on the public land. A ground rent Spelman; Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SOLATIUM.

Compensation. Damages allowed for injury to the feelings.

5e apparatus — Not carried into the 5th edition (1979).

## SOLD NOTE.

A note given by a broker, who has effected a sale of merchandise, to the buyer, stating the fact of sale, quantity, price, etc. Story, Ag. f 28; Saladin v. Mit- chell, 45 111. 83.

5e apparatus — Carried into the 5th edition (1979).

## SOLDIER.

A military man; a private in the army.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Henry V, 1599]**

We few, we happy few, we band of brothers.

Why: The St. Crispin's Day speech (IV.iii): the canonical literary voice of the common soldier, which is all the entry defines — a military man, a private in the army.

## SOLE.

Single; individual; separate; the opposite of joint; as a sole tenant. '

Comprising only one person ; the opposite of aggregate ; as a sole corporation.

Unmarried ; as a feme sole. See the nouns.

5e apparatus — Carried into the 5th edition (1979).

## SOLEMN.

Formal ; in regular form ; with all the forms of a proceeding. As to solemn "Form," see Pbobate. As to solemn “Oath” and “War,” see the nouns.

5e apparatus — Not carried into the 5th edition (1979).

## SOLEMNE8 LEGUM FORMUUE.

Lat, In the civil law. Solemn forms of laws; forms of forensic proceedings and of trans- acting legal acts. One of the sources of the unwritten law of Rome. Butl. Hor. Jor. 47.

SOLEMNITA8 ATTACH! AMENT O-

RUM. In old English practice. Solemnity or formality of attachments. The issuing of attachments In a certain formal and regular order. Bract fols. 439, 440; 1 Reeve, Eng. Law, 480.

Solemnltates juris aunt obtemade.

The solemnities of law are to be observed. Jenk. Cent 13.

5e apparatus — Not carried into the 5th edition (1979).

## SOLEMNITY.

A rite or ceremony; the formality established by law to render a con- tract, agreement or other act valid.

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5e apparatus — Not carried into the 5th edition (1979).

## SOLEMNIZE.

To solemnize, spoken of a marriage, means no more than to enter in- to a marriage contract with due publication, before third persons, for the purpose of giv- ing it notoriety and certainty ; which may be before any persons, relatives, friends, or strangers, competent to testify to the facts. See Dyer v. Brannock, 66 Mo. 410, 27 Am. Rep. 309 ; Pearson v. Ilowey, 11 N. J. Law, 19 ; Bowman v. Bowman, 24 111. App. 172.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 19:5, KJV]**

And said, For this cause shall a man leave father and mother, and shall cleave to his wife: and they twain shall be one flesh?

Why: To solemnize a marriage is to enter the marriage contract; these are Christ's own spoken words stating the marriage union, in red-letter editions printed as His speech.

## SOLICITATION.

Asking; enticing; ur- gent request Thus “solicitation of chasti- ty” Is the asking or urging a woman to surrender her chastity. The word is also used in such phrases as “solicitation to lar- ceny,” to bribery, etc.

5e apparatus — Carried into the 5th edition (1979).

## SOLICITOR.

In English law. A legal practitioner In the court of chancery. The words “solicitor” and “attorney” are com- monly used Indiscriminately, although they are not precisely the same, an attorney being a practitioner In the courts of common law, a solicitor a practitioner in the courts of eq-

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nltjr. Most attorneys take out a certificate to practice in the courts of chancery, and therefore become solicitors also, and, on the other hand, most, if not all, solicitors take out a certificate to practice in the courts of common law, and therefore become attorneys also. Brown.

— Solicitor general. In English law. One of the principal law officers of the crown, associat- ed in his duties with the attorney general, hold- ing office by patent during the pleasure of the sovereign, and having a right of preaudience in the courts. 3 Bl. Comm. 27. In American law, an officer of the department of justice, next in tank and authority to the attorney general, whose principal assistant he is. His chief func- tion is to represent the United States in all cases in the supreme court and the court of claims in which the government is interested or to which it is a party, and to discharge the duties of the attorney general in the absence or disability of that officer or when there is a vacancy in the office. Rev. St. U. S. !§ 347. 359 (U. S. Comp. St. 1901, pp. 202. 207).— Solici- tor of the supreme court. The solicitors be- fore the supreme codrts, in Scotland, are a body of. solicitors entitled to

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practice in the court of session, etc. Their charter of incorporation bears date August 10, 1797.— Solicitor of the treasury. An officer of the United States at- tached to the department of justice, having gen- eral charge of the law business appertaining to the treasury.— Solicitor to the suitors’ fund. An officer of the English court of chan- cery, who is appointed in certain cases guardian ad litem.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852-53]**

(paraphrase) Dickens's Mr. Tulkinghorn, the brooding Chancery solicitor, guards his clients' secrets to the grave. (paraphrase)

Why: The archetypal fictional solicitor of the Court of Chancery — the office the entry defines.

## SOLIDARY.

A term of civil-law origin, signifying that the right or Interest spoken of is joint or common. A “solidary obliga- tion" corresponds to a “joint and several” obligation In the common law; that Is, one for which several debtors are bound in such wise that each is liable for the entire amount, and not merely for his proportionate share. But In the civil law the term also Includes the case where there are several creditors, as against a common debtor, each of whom is entitled to receive the entire debt and give an acquittance tor It

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## SOLIDUM.

Lat. In the civil law. A whole; an entire or undivided thing.

5e apparatus — Not carried into the 5th edition (1979).

## SOLIDUS LEGALI8.

A coin equal to 13s. 4d. of the present standard. 4 Steph. Comm. 119n. Originally the “solidus" was a gold coin of the Byzantine Empire, but In medieval times the term was npplled to several varieties of coins, or as descriptive of a money of account apd is supposed to be the root from which “shilling" is derived.

5e apparatus — Not carried into the 5th edition (1979).

## SOLUTUM.

In old English law. Two plow-lands, and somewhat less than a half. Oo. Litt 5a.

Sole oedlt quod solo lnadlilwtnr. That which is built upon the soil belongs to tho soli. The proprietor of the soil becomes also proprietor of the building erected upon it Mackeld. Rom. Law, | 275.

Solo eodlt quod solo implantatur. That which is planted in the soil belongs to the

soil. The proprietor of the soil becomes also the proprietor of the seed, the plant, and the tree, as soon as these have taken root Mackeld. Rom. Law, § 275.

5e apparatus — Not carried into the 5th edition (1979).

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## SOLUM PROVINCIALS.

Lat In Ro- man law. The solum italicum (an extension of the old Ager Romanu ») admitted full own- ership, and of the application to it of usu- capio; whereas the solum provinciate (an ex- tension of the old Ager Publicus) admitted of a possessory title only, and of longi temporis possessio only. Justinian abolished all dis- tinctions between the two, sinking the itali- cum to the level of the provinciate. Brown.

Solum res hoe non facers potest, quod non potest injuste agere. 11 Coke, 72. This alone the king cannot do, he cannot act unjustly.

Solns Dons faelt hseredem, non homo.

Co. Lltt 5. God alone makes the heir, notman.

5e apparatus — Not carried into the 5th edition (1979).

## SOLUTIO.

Lat In civil law. Pay- ment, satisfaction, or release ; any species of discharge of an obligation accepted as satis- factory by the creditor. The term refers not so much to the counting out of money as to the substance of the obligation. Dig. 46, 3, 54 ; Id. 50, 16, 176.

— Solutlo in debit!. In the civil law. Pay- ment of what was not due. From the payment of what was not due arises an obligation quasi ea contractu. When one has erroneously given or performed something to or for another, for which he was in no wise bound, he may rede- mand it, as if he had only lent it. The term “solutio indebiti” is here used in a very wide sense, and includes also the case where one per- formed labor for another, or assumed to pay a debt for which he was not bound, or relinquish- ed a right or released a debt, under the impres- sion that he was legally bound to do so. Mack- eld. Rom. Law, f 590.

Solutio pretil emptlonts loco habetur.

The payment of the price [of a tiling) is held to be in place of a purchase, [operates as a purchase.] Jenk. Cent p. 56, case 2 ; 2 Kent. Comm. 387.

SOLUTION!! FEODI MXLITIS PAR- LIAMENTI, or PEODI BURGENSI8 PARLIAMENT!. Old writs whereby knights of the shire and burgesses might have recovered their wages or allowance if it had been refused. 35 Hen. VIII. c. 11.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:8, KJV]**

Owe no man any thing, but to love one another: for he that loveth another hath fulfilled the law.

Why: Solutio is payment, satisfaction, discharge of an obligation; the verse commands leaving no debt undischarged.

## SOLUTUS.

In the civil law. Loosed;

freed from confinement ; set at liberty. Dig. 50, 16, 48.

In Scotch practice. Purged. A term used in old depositions.

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5e apparatus — Not carried into the 5th edition (1979).

## SOLVABILITY.

Fr. In French law. Ability to pay; solvency. Emerlg. Trait* des Assur. c. 8, I 15.

5e apparatus — Not carried into the 5th edition (1979).

## SOLVENCY.

Ability to pay; present ability to pay ; ability to pay one’s debts out of one’s own present means. Marsh >▼. Dunckel. 25 Hun (N. Y.) 109; Osborne v. Smith «X C.) 18 Fed. 130; Larkin v. Hap- good, 56 Vt 601 ; Sterrett v. Third Nat Bank, 46 Hun (N. Y.) 26; Reid v. Lloyd, 52 Mo. App. 282.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: Solvency is the ability to pay one's debts; the psalm draws the moral anatomy of it — the wicked borrow and do not pay, the righteous pay.

## SOLVENT) O.

Lat. Paying. An apt word of reserving a rent in old conveyances. Co. Litt 470.

5e apparatus — Not carried into the 5th edition (1979).

## SOLVENDO ESSE.

Lat. To be in a

state of solvency ; 1. e., able to pay.

Solvendo ease nemo intelligltur nisi qni aolidnm potest aolvere. No one is con- sidered to be solvent unless he can pay all that he owes. Dig. 50, 16, 114.

5e apparatus — Not carried into the 5th edition (1979).

## SOLVENT.

A solvent person is one who is able to pay all his just debts in full out of his own present means. See Dig. 50, 16, 114. And see Solvency.

5e apparatus — Carried into the 5th edition (1979).

## SOLVERE.

Lat To pay ; to comply with one’s engagement; to do what one has undertaken to do; to release one's self from obligation, as by payment of a debt. Calvin. —Solvere poenas. To pay the penalty.

5e apparatus — Not carried into the 5th edition (1979).

## SOLVIT.

Lat He paid; paid. 10 East 206.

—Solvit ad diem. He paid at the day. The technical name of the plea, in an action of debt on

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bond, that the defendant paid the money on the day mentioned in the condition. 1 Archb.

N. P. 220, 221.— Solvit ante diem. A plea that the money was paid before the day appointed.—Solvit post diem. He paid after the day. The plea in an action of debt on bond that the defendant paid the money after the day named for the payment, and before the commencement of the suit. 1 Archb. N. P. 222.

Solvitar adhnc aooletas etlam morte socii. A partnership is moreover dissolved by the death of a partner. Inst. 3, 26, 5; Dig. 17, 2.

Solvitar eo ligamine qno ligatnr. In

the same manner that a thing is bound it is unloosed. Livingston v. Lynch, 4 Johns. Ch. (N. Y.) 582.

5e apparatus — Not carried into the 5th edition (1979).

## SOMERSETT'S CASE.

A celebrated de- cision of the English king's bench, in 1771, (20 How. St. Tr. 1,) that slavery no longer existed in England in any form, and could not for the future exist on English soil, and that any person brought into England as a slave could not be thence removed except by the legal means applicable in the case of any free-born person.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Jay-Z, 'The Story of O.J.', 2017]**

"Light nigga, dark nigga, faux nigga, real nigga / Rich nigga, poor nigga, house nigga, field nigga / Still nigga, still nigga" — Somersett's Case (1772) held slavery had no basis in English common law: the legal landmark of abolition. Jay-Z's "still nigga" coda is the counter-landmark — the legal declaration of freedom did not end the condition of subjection. The juxtaposition illuminates what the case settled (legal status) and what it could not (lived freedom).

Why: Distinct from the SLAVE annotation: here the lyric illuminates the case's limits, not the definition's content — legal abolition versus emancipation as an unfinished condition. A genuine thematic counterpoint, not dec...

## SOMMATION.

In French law. A de- mand served by a huissicr, by which one oarty calls upon another to do or not to do a

certain thing. This document has for its object to establish that upon a curtain date the demand was made. Arg. Fr. Merc. Law, 574.

5e apparatus — Not carried into the 5th edition (1979).

## SOMNAMBULISM.

Sleep-walking. Whether this condition is anything more than a co-operation of the voluntary muscles with the thoughts which occupy the mind during sleep is not settled by physiologists. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

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**[Shakespeare, Macbeth, c. 1606]**

Out, damned spot! out, I say!

Why: Lady Macbeth's sleepwalking scene (V.i): the canonical literary somnambulism — the voluntary muscles cooperating with the thoughts occupying the sleeping mind, as the entry describes.

## SOMPNOUR.

In ecclesiastical law, an officer of the ecclesiastical courts whose duty was to serve citations or process.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1387-1400]**

(paraphrase) Chaucer's Summoner, a church-court officer who cites sinners to answer, rides among the Canterbury pilgrims. (paraphrase)

Why: Exactly the officer the entry defines — a server of citations and process for the ecclesiastical courts — in the most famous literary appearance of the office.

## SON.

An immediate male descendant ; the. correlative of “father." Technically a word of purchase, unless explained. Its meaning may be extended by construction to Include more remote descendants, such- as a grand- child, and also to include an illegitimate male child, though the presumption is against this- See Flora v. Anderson (C. 0.) 67 Fed. 185; Lind v. Burke, 56 Neb. 785, 77 N. W. 444; Yarnall’s Appeal, 70 Pa. 341; Jamison v. Hay, 46 Mo. 548; Phipps v. Mulgrave, 5 Term, 323.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:12, KJV]**

Honour thy father and thy mother: that thy days may be long upon the land which the LORD thy God giveth thee.

Why: SON is defined as the correlative of 'father'; the fifth commandment states the son's correlative duty toward the father.

## SON.

Fr. His. Her. See Civ. Code La? art. 3522. ; j

—Son as fault demesne. His own assault. A plea which occurs in the actions of trespass ana trespass on the case, by which the defendant alleges that it was the plaintiff’s own original assault that occasioned the trespass for which he has brought the action, and that what the defendant did was merely in his own defense. Steph. PI. 186.

5e apparatus — Carried into the 5th edition (1979).

## SON-IN-LAW.

The husband of one’s daughter. <'

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## SONTAGE.

A tax of forty shillings an- ciently laid upon every knight’s fee. Cowell;

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## SONTICUS.

Lat In the civil law. .Hurt; ful; injurious; hindering; excusing or jute tlfying delay. Morbus sonticus is any Illness pf so serious a nature as to prevent a de- fendant from appearing in court and to give him a valid excuse. Calyin.

5e apparatus — Not carried into the 5th edition (1979).

## SOON.

If there is no time specified fog the performance of an act, or if it is speci- fied that it is to be performed soon, the law implies that it is to be performed within ■ a reasonable time. Sanford v. Shephard, 14 Kan. 232.

SOREHON, or SORN. An arbitrary ex- action, formerly existing in Scotland and Ireland. Whenever a chieftain had a mind to revel, he came down among the tenants with his followers, by way of contempt called “Oilliicitfltts,” and lived on free quarters. Wharton; Bell.

5e apparatus — Carried into the 5th edition (1979).

## SORNER.

In Scotch law. A person who takes meat and drink from others by force or menaces, without paying for it Bell.

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- SOROR. Lat. In the civil law. Slater ; a sister. Ihst. 3, 6, 1.

5e apparatus — Not carried into the 5th edition (1979).

## SORORICIBE.

The killing or murder of a sister; one who murders his sister. This Is not a technical term of the law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: Sororicide is the killing of a sister — kin-murder; the verse is the post-diluvian homicide ordinance covering all shedding of man's blood, grounded in the image of God.

## SORS.

Lat. In the civil law. Lot; chance; fortune; hazard; a lot, made of wood, gold, or other material. Money bor- rowed, or put out at interest. A principal sum or fund, such as the capital of a part- nership. Ainsworth ; Calvin.

Ia old English law. A principal lent on interest, as distinguished from the inter- est itself.

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A thing recovered in action, as distin- guished from the costs of the action.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: Sors is lot, chance, hazard; the proverb is the classical statement on the lot itself.

**[Humanity] — Humanity / Fiction & Film**

**[Shirley Jackson, 'The Lottery', 1948]**

(paraphrase) In Shirley Jackson's story a village selects its annual victim by lot — sors made lethal. (paraphrase)

Why: Selection by lot as the story's engine; illuminates the entry's primary civil-law sense (lot, chance, fortune). The entry's secondary senses (money at interest) are not implicated.

## SORTITIO.

Lat In the civil law. A drawing of lots. Bortitio fudicum was the process of selecting a number of judges, for a criminal trial, by drawing lots.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 1:26, KJV]**

And they gave forth their lots; and the lot fell upon Matthias; and he was numbered with the eleven apostles.

Why: Sortitio is the drawing of lots; the verse records the procedural act of sortition in use.

## SOUGH.

In English law. A drain or water-course. The channels or water-courses used for draining mines are so termed; and those mines which are near to any given sough, and lie within the same level, and are benefited by it, are technically said to lie Within the title of that sough. 5 Mees. &

W. 228; Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SOUL  SCOT.

A mortuary, or customary gift due ministers, in many parishes of Eng- land, on the death of parishioners. It was orlginaHy voluntary and Intended as amends for ecclesiastical dues neglected to be paid in the life-time. 2 Bl. Comm. 425.

SOUND, v. To have reference or relation to ; to aim at An action is technically said to »ound in damages where it is brought not for the specific recovery of a thing, but for damages only. Steph. Pl. 105.

SOUND, adj. Whole; in good condition; marketable. So used in warranties of chat- tels. See Brown v. Bigelow, 10 Allen (Mass.) 242; Hawkins v. Pemberton, 35 How. Prao. (N. Y.) 383; Woodbury v. Robbins, 10 Cush. (Mass.) 522.

— Sound and disposing mind and memory.

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This phrase is often used in the law of wills, to signify testamentary capacity.— Sonnd mind. This term denotes the normal condition of the human mind, — that state in which its faculties of perception and judgment are ordinari- ly well developed, and not impaired by mania, insanity, or dementia. See Daly v. Daly. 183 111. 2®. 55 N. E. 671 ; Delafield v. Parish. 25

N. Y. 102: Wilson v. Mitchell, 101 Pa. 4!>5; Spratt v. Sprntt, 76 Mich. 384, 43 N. W. 627 ; Whitney v. Twombly, 130 Mass. 147; Harrison v. Rowan, 11 Fed. Cas. 661; Yoe v. McCord, 74 111. 37.

5e apparatus — Not carried into the 5th edition (1979).

# B

## BOUNDING IN DAMAGES.

When an action is brought, not for the recovery of lands, goods, or sums of money, (as is the

case in real or mixed actions or the personal action of debt or detinue,) but for damages only, as in covenant, trespass, etc., the action is said to be “sounding in damages.” Steph.

PI. 116. See Collins v. Greene, 67 Ala. 211 ; Rosser v. Bunn, 66 Ala. 03.

5e apparatus — Not carried into the 5th edition (1979).

# S

## SOUNDNESS.

General health; freedom from any permanent disease. 1 Car. & M. 281.

5e apparatus — Carried into the 5th edition (1979).

## SOURCES OF THE LAW.

The origins from which particular positive laws derive their authority and coercive force. Such are constitutions, treaties, statutes, usages, and customs.

In another sense, the authoritative or re- liable works, records, documents, edicts, etc., to which we are to look for an understand- ing of what constitutes the law. Such, for example, with reference to the Roman law, are the compilations of Justinian and the treatise of Gaius; and such, with reference to the common law, are especially the an- cient reports and t£e works of such writers as Bracton, Littleton, Coke, “Fleta,” and others.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. VI, cl. 2 (Supremacy Clause)]**

Among the sources the entry enumerates, the Constitution itself fixes the rank: 'This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or

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which shall be made, under the Authority of the United States, shall be the supreme Law of the Land.'

Why: The body lists constitutions, treaties, statutes, usages, and customs as sources but says nothing of their order; the footnote adds the one genuine hierarchical axiom governing the listed sources — the Supremacy Claus...

## SOUS BEING PRIVE.

Fr. In French law. Under private signature; under the private signature of the parties. A contract or Instrument thus signed is distinguished from an “authentic act," which is formally concluded before a notary or judge. Civil Code La. art 2240.

5e apparatus — Not carried into the 5th edition (1979).

## SOUTH.

L . Fr. Under. Bendloe, 33.

5e apparatus — Not carried into the 5th edition (1979).

## SOUTH SEA FUND.

The produce of the taxes appropriated to pay the interest of such part of the English national debt as was advanced by the South Sea Company and its annuitants. The holders of South Sea an- nuities have been paid off, or have received other stock in lieu thereof. 2 Steph. Comm. 578.

5e apparatus — Not carried into the 5th edition (1979).

## SOVEREIGN.

A chief ruler with su- preme power ; a king or other ruler with lim- ited power.

In English law. A gold coin of Great Britain, of the value of a pound sterling. —Sovereign people. A term familiarly used to describe the political body, consisting of the entire number of citizens and qualified electors, who, In their collegiate capacity, possess the powers of sovereignty and exercise them through their chosen representatives. See Scott v. Sand- ford, 19 How. 404, 15 L. Ed. 681.— Sovereign power. That power in a state to which none other is superior or equal, and which includes all the specific powers which are necessary to accomplish the legitimate ends and purposes of government See Boggs v. Merced Min. Co., 14 Cal. 308: Donnelly v. Decker, 58 Wis. 461, 17

N. W. 389. 46 Am. Rep. 637 ; Com. v. Alger, 7 Cush. (Mass.) 81.— Sovereign right. A right which the state alone, or some of its governmen- tal agencies, can possess, and which it possesses in the character of a sovereign, for the common benefit, and to enable it to carry out its proper functions; distinguished from such “proprieta-

SPECIAL

ry” rights as a state, like any private person, may have in property or demands which it owns. See St. Paul v. Chicago, etc., R. Co., 45 Minn. 387, 48 N. W. 17.— Sovereign states. States whose subjects or citizens are in the habit of obedience to them, and which are not them- selves subject to any other (or paramount) state in any respect The state is said to be semi- sovereign only, and not sovereign, when in any respect or respects it is liable to be

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controlled (like certain of the states in India) by a para- mount government (e. g., by the British empire.) Brown. "In the intercourse of nations, certain states have a position of entire independence of others, and can perform all those acts which it is possible for any state to perform in this par- ticular sphere. These same states have also entire power of self-government; that is, of in- dependence upon all other states as far as their own territory and citizens not living abroad are concerned. No foreign power or law can have control except by convention. This power of independent action in external and internal re- lations constitutes complete sovereignty.” Wools. Pol. Science, I. 204.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. pmbl.]**

The entry's 'sovereign people' — the political body possessing the powers of sovereignty — is the actor of the Preamble: 'We the People of the United States ... do ordain and establish this Constitution for the United States of America.'

Why: The body describes the sovereign people in the abstract; the footnote supplies the operative American text in which that sovereign body exercises its sovereignty by ordaining the Constitution — the constitutional anch...

**[Scripture] — Scripture**

**[1 Timothy 6:15, KJV]**

the blessed and only Potentate, the King of kings, and Lord of lords

Why: A sovereign is a chief ruler with supreme power; the verse names the supreme Sovereign above all earthly ones.

## SOVEREIGNTY.

The possession of sovereign power; supreme political author- ity; paramount control of the constitution and frame of government and Its administra- tion; the self-sufficient source of political power, from which all specific political pow- ers are derived; the international Independ- ence of a state, combined with the right and power of regulating its internal affairs with- out foreign dictation ; also a political society, or state, which is sovereign and Independent. See Chisholm v. Georgia, 2 Dali. 455, 1 L. Ed. 440; Union Bank v. Hill, 3 Cold. (Tenn.) 325; Moore v. Shaw, 17 Cal. 218, 79 Am. Dec. 123.

“The freedom of the nation has its correlate in the sovereignty of the nation. Political sovereignty is the assertion of the self-determi- nate will of the organic people, and in this there is the manifestation of its freedom. It is In and through the determination of its sovereign- ty that the order of the nation is constituted and maintained.” Mulford, Nation, p. 129.

“If a determinate human superior, not in a habit of obedience to a like superior, receive habitual obedience from the bulk of a given so- ciety, that determinate superior is sovereign in that society, and the society (including the su- perior) is a society political and independent.” Aust. Jur.

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**[Scripture] — Scripture**

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**[Romans 13:1, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God.

Why: Sovereignty is supreme political authority; the verse is the classic locus for the source of that authority.

**[Hip-hop] — Hip-hop**

**[KRS-One, 'Sound of da Police', 1993]**

"Woop-woop! That's the sound of da police!" — Black's: sovereignty is "supreme political authority... the self-sufficient source of political power." KRS-One's track figures that coercive authority as the police, explicitly linking the officer to the plantation overseer; the hook names the audible signature of sovereign force.

Why: The song is a sustained meditation on the state's monopoly of force; the hook is the certain, famous formulation. It genuinely illuminates sovereignty-as-coercive-authority rather than the abstract definition alone.

## SOVERTXE.

In old Scotch law. Surety. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## SOWZJBGROVE.

February; so called In South Wales. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SOWKING AND ROVHINO.

In

Scotch law. Terms used to express the form by which the number of cattle brought upon a common by those having a servitude of pasturage may be justly proportioned to the rights of the different persons possessed of the servitude. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## SOWNE.

In old English law. To be leviable. An old exchequer term applied to sheriff’s returns. 4 Inst. 107; Cowell; Spel- man.

5e apparatus — Carried into the 5th edition (1979).

## SPADARIU8.

Lat A sword-bearer. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## SPADONES.

Lat In the civil law. Im- potent persons. Those who, on account of their temperament or some accident they have suffered, are unable to procreate. Inst 1, 11, 9; Dig. 1, 7, 2, 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 19:12, KJV]**

For there are some eunuchs, which were so born from their mother's womb: and there are some

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eunuchs, which were made eunuchs of men: and there be eunuchs, which have made themselves eunuchs for the kingdom of heaven's sake.

Why: Spadones are impotent persons — eunuchs in the civil law; Christ's own taxonomy of eunuchs, spoken by Him.

### SPARSIM.

Lat. Here and there ; scat- tered ; at Intervals. For instance, trespass to realty by cutting timber sparstm (here and there) through a tract

8PAT2E PLACITUM. In old English law. A court for the speedy execution of Justice upon military delinquents. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

### SPEAK.

In practice. To argue. “The case was ordered to be spoke to again.” 10 Mod. 107. See Impaklance; Speaking with Pbosecutor.

5e apparatus — Not carried into the 5th edition (1979).

### SPEAKER.

This Is the official designa- tion of the president or chairman of certain legislative bodies, particularly of the housq of representatives in the congress of the United States, of one or both branches of several of the state legislatures, and of the two houses of the British parliament

The term “speaker,” as used in reference to either of the houses of parliament signi- fies the functionary acting as chairman. In the commons his duties are to put questions, to preserve order, and to see that the privi- leges of the house are not infringed ; and. In the event of the numbers being even on a division, he has the privilege of giving the casting vote. The speaker of the lords Is the lord chancellor or the lord keeper of the great seal of England, or, If he be absent, the lords may choose their own speaker. The duties of the speaker of the lords are principally confined to putting questions, and the lord chancellor has no more to do with preserving order than any other peer: Brown.

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### SPEAKING DEMURRER.

See DEUtib-

**[TEXT INCOMPLETE — scan limitation]**

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# B

### BEB.

**[TEXT INCOMPLETE — scan limitation]**

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# S

## SPEAKING ORDER.

See Obdeb.

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## SPEAKING WITH PROSECUTOR.

A

method of compounding an offense, allowed In the English practice, where the court permits a defendant convicted of a misdemeanor to speak with the prosecutor before Judgment is pronounced; if the prosecutor de- clares himself satisfied, the court may In- flict a trivial punishment. 4 Stepb. Comm. 261.

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## SPECIAL.

Relating to or designating a species, kind, or sort; designed for a partlcv- lar purpose; confined to a particular pur

pose, object, person, or class. The opposite of “general.”

— Special act. A private statute ; an ' act which operates only upon particular persons or private concerns. 1 Bl. Comm. 80; Unity v. Burra ge, 103 U. S. 454, 20 L. Ed. 405.— Spe- cial case. In English practice. When a trial at nisi print appears to the judge to turn on a point of law, the jury may find a general ver- dict, subject to the opinion of the court above, upon what is termed a “special case” to be made; that is, upon a written statement of all the facts of the case drawn up for the opinion of the court in bone, by the counsel and attor- neys oo • either side, under correction of the judge at nisi prius. The party for whom the general verdict is so given is in such case not entitled to judgment till the court in banc has decided on the special case; and, according to the result of that decision, the verdict is ulti- mately entered either for him or his adversary. Brown.— Special claim. In English law. A claim not enumerated in the orders of April 22, 1850, which required the leave of the court of chancery to file it. Such claims are abolished. —Special commission. In English law. An extraordinary commission of oyer and terminer and gaol delivery, issued by the crown to the judges when it is necessary that offenses should be immediately tried and punished. Wharton. — Speoial error*. Special pleas in error are such as, Instead of joining in error, allege some extraneous matter as a ground of defeating the writ of error, e. g., a release of errors, expira- tion of the time within which error might be brought, or the like. To these, the plaintiff in error may either reply or demur. — Speoial matter. Under a plea of the general issue, the defendant is allowed to give special matter in evidence, usually after notice to the plaintiff of the nature of such matter, thus sparing him the necessity of pleading it specially. 3 Bl. Comm. 306. — Speoial paper. A list kept in the English courts of common law, and now in the king's bench, common pleas, and exchequer divisions of the high court, in which list demur- rers, special enses, etc., to be argued are set down. It is

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distinguished from the new trial paper, peremptory paper, crown paper, revenue paper, etc., according to the practice of the par- ticular division. Wharton.

As to special “Acceptance,” “Administra- tion,” “Agent," “Allocatur,” “Allowances,” “Assessment,” “Assumpsit” “Ball," “Bailiff,” “Bastard," “Benefit,” “Calendar,” “Charge,” “Constable,” “Contract,” “Count,” “Cove- nant,” “Custom," “Damage,” “Demurrer,” “Deposit,” “Deputy,” “Election,” “Examin- er," “Executor,” “Finding,” “Guaranty,” “Guardian.” “Imparlance,” “Indorsement,” “Indorsement of Writ,” “Injunction," “In* suranee,” “Issue,” “Jurisdiction,” “Jury,” “Law,” “Legacy,” “Letter of Credit,” “Li- cense,” “Lien," “Limitation," “Malice,” “Mas- ter,” “Meeting,” “Mortgage,” “Motion.” “Non Est Factum,” “Occupant,” “Owner.” “Part- ner,” “Partnership," "Plea.” “Pleader,” “Pleading,” “Power,” “Privilege,” “Proceed- ing,” “Property,” “Bequest;” “Replication," “Restraint of Trade,” “Retainer,” “Rule,” “Service," “Sessions,” “Statute,” “Stock,” “Tall,” “Term." “Terms,” “Traverse,” “Trust,” “Verdict,” and “Warranty,” see those titles.

Special!* cenerallbn* derogant. Spe- cial words derogate from general words. A

special provision as to a particular subject- matter is to be preferred to general lan- guage, which might have governed In the absence of such special provision. L. R. 1

C. P. 546.

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## SPECIALTY.

A writing sealed and de- livered, containing some agreement A writ- ing sealed and delivered, which is given as a security for the payment of a debt. In which such debt Is particularly specified. Bac. Abr. “Obligation,” A.

A specialty Is a contract under seal, and is considered by law as entered into with more solemnity, and, consequently, of higher dignity than ordinary simple contracts. Code Ga. 1882, $ 2717

—Specialty debt. A debt due or acknowledg- ed to be due by deed or instrument under seaL 2 Bl. Comm. 465.

SPECIE. 1. Coin of the precious met- als, of a certain weight and fineness, and bearing the stamp of the government, de- noting its value as currency. Trebilcock v. Wilson, 12 Wall. 695, 20 L. Ed. 460; Walkup v. Houston, 65 N. C. 501 ; Henry v. Bank of Salina, 5 Hill (N. Y.) 536.

2. When spoken of a contract, the ex- pression “performance in specie" means strictly, or according to the exact terms. Aa applied to things, it signifies individuality or Identity. Thus, on a bequest of a specific picture, the legatee would be said to be en- titled to the delivery of the picture in specie; i. e., of the very thing. Whether a thing Is due in genere or in specie depends, in each case, on the will of the transacting parties. Brown.

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**[Scripture] — Scripture**
**[Jeremiah 32:10-11, KJV]**

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And I subscribed the evidence, and sealed it, and took witnesses, and weighed him the money in the balances. So I took the evidence of the purchase, both that which was sealed according to the law and custom, and that which was open:

Why: A specialty is a writing sealed and delivered containing an agreement; Jeremiah's purchase-deed, sealed 'according to the law and custom' with witnesses, is the ancient specialty in act.

## SPECIES.

Lat In the civil law. Form ; figure; fashion or shape. A form or shape given to materials.

A particular thing; as distinguished from "genus."

—Specie* fact!. In Scotch law. The particu- lar criminal act charged against a person.

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## SPECIFIC.

Having a certain form or designation; observing- a certain form; par- ticular; precise.

As to specific “Denial,” “Devise,” “Leg- acy,” and “Performance,” see those titles.

SPECIFICATION Lat In the civil law. Literally, a making of form ; a giving of form to materials. That mode of acquiring property through which a person, by trans- forming a thing belonging to another, es- pecially by working up his materials into a new species, becomes proprietor of the same. Mackeld. Rom. Law, | 27L

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## SPECIFICATION.

As used in the law

relating to patents and in building contracts, the term denotes a particular or detailed statement of the various elements Involved.

Gilbert v. U. S., 1 Ct. Cl. 34 ; State v. Ken- dall, 15 Neb. 262, 18 N. W. 85; Wilson v. Coon (C. C.) 6 Fed. 614.

Ia military law. The clear and particu- lar description of the charges preferred against a person accused of a military of- fense. Tytler, Mil. Law, 109; Carter v. Mc- Claughry, 183 U. S. 305, 22 Sup. Ct 181, 46

L. Ed. 236.

In the law of personal property. The

acquisition of title to a thing by working it into new forms or species from the raw ma- terial; corresponding to the spccificatio of the Roman law. See Lampton v. Preston, 1

J. J. Marsh. (Ky.) 462, Iff Am. Dec. 104.

In practice. A detailed and particular enumeration of several points or matters urged or relied on by a party to a suit or proceeding; as, a “specification of errors,” qr a “specification of grounds of opposition to a bankrupt’s discharge.” See Railway Co. v. McArthur, 96 Tex. 65, 70 S. W. 317 ; In re Glass (D. C.) 119 Fed. 514.

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## SPECIMEN.

A sample; a part of some- thing Intended to exhibit the kind and quali- ty of the whole. People v. Freeman, 1 Idaho, 322.

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## SPECULATION.

In commerce. The act or practice of buying lands, goods, etc., in expectation of a rise of price and of selling them at an advance, as distinguished from a regular trade, in which the profit expected is the difference between the retail and whole- sale prices, or the difference of price in the place where the goods are purchased, and the place where they are to be carried for market. Webster. See Maxwell v. Burns (Tenn. Ch. App.) 59 S. W. 1067 ; U. S. v. Detroit Timber & Lumber Co. (C. C.) 124 Fed. 393.

' SPECULATIVE DAMAGES. See Dam- ages.

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, The Merchant of Venice, c. 1596]**

All that glisters is not gold.

Why: The Prince of Morocco chooses the gold casket expecting value and finds a skull (II.vii): speculation on apparent worth, punished — glossing the entry's 'buying in expectation of a rise of price'.

## SPECULUM.

Lat Mirror or looking- glass. The title of several of the most an- cient law-books or compilations. One of the ancient Icelandic books is styled “Speculum Regale."

5e apparatus — Not carried into the 5th edition (1979).

## SPEEDY EXECUTION.

An execution which, by the direction of the Judge at nisi prius, Issues forthwith, or on some early day fixed upon by the judge for that pur- pose after the trial of the action. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: Speedy execution is execution issuing forthwith; the verse states as legal cause-and-effect that un-speedy execution emboldens evil.

## SPEEDY TRIAL.

In criminal law. As secured by constitutional guaranties, a speedy trial means a trial conducted according to fixed rules, regulations, and proceedings of law, free from vexatious, capricious, and op- pressive delays manufactured by the minis- ters of justice. See People v. Hall, 51 App. Div. 57, 64 N. Y. Supp. 433 ; Nixon v. State, 2 Smedes & M. (Miss.) 507, 41 Am. Dec. 601;

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Cummins v. People, 4 Colo. App. 71, 34 Pac. 734 ; Benton v. Com., 91 Va. 782, 21 S. E. 495.

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**[Law] — Law**

**[Law: U.S. Const. amend. VI]**

The 'constitutional guaranties' the entry invokes are anchored in the Sixth Amendment: 'the accused shall enjoy the right to a speedy and public trial.'

Why: The body defines speedy trial by reference to 'constitutional guaranties' without quoting any; the footnote supplies the verbatim guarantee — the same definition-to-text shape as a sound annotation — rather than resta...

**[Scripture] — Scripture**

**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: A speedy trial is the constitutional guaranty of swiftness in criminal process; the verse states the same speed-of-justice principle as cause and effect.

## SPELLING.

The formation of words by letters ; orthography. Incorrect spelling does not vitiate a written instrument if the in- tention clearly appears.

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## SPENDTHRIFT.

A person who by ex- cessive drinking, gaming, idleness, or de- bauchery of any kind shall so spend, waste, or lessen his estate as to expose himself or his family to want or suffering, or expose the town to charge or expense for the support of himself or family. Rev. St. Vt C. 65, § 9; Appeal of Morey, 57 N. H. 54.

The word “spendthrift,” in all the provi- sions relating to guardians and wards, con- tained in this or any other statute, is in- tended to include every person who is liable to be put under guardianship, on account of excessive drinking, gaming, idleness, or de- bauchery. How. St. Mich. 1882, { 6340.

—Spendthrift trust. A term commonly ap- plied to those trusts which are created with a view of providing a fhnd for the maintenance of another, and at the same time securing it against his improvidence or incapacity for his protection. Provisions against alienation of the trust fund by the voluntary act of the beneficia- ry or by his creditors are the usual incidents. Bennett v. Bennett, 66 ill. App. 28; Guernsey v. Lazear, 51 W. Va. 328, 41 S. E. 405.

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**[Scripture] — Scripture**

**[Proverbs 21:20, KJV]**

There is treasure to be desired and oil in the dwelling of the wise; but a foolish man spendeth it up.

Why: The spendthrift wastes by excess; the proverb defines him by his spending — the foolish man spends up what the wise keep.

**[Humanity] — Humanity / Fiction & Film**

**[Aesop, Fables, c. 6th c. BCE]**

(paraphrase) Aesop's grasshopper sings away the summer while the ant stores grain, and starves when winter comes. (paraphrase)

Why: The fable archetype of the entry's waster — one who by idleness and excess lessens his estate until want follows.

## SPERATE.

That of which there is hope. Thus a debt which one may hope to recover may be called "sperate," In opposition to “desperate.” See 1 Chit. Pr. 520.

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## SPES ACCRESCENDI.

Lat. Hope of surviving. 3 Atk. 762 ; 2 Kent, Comm. 424.

Spes eat vigilsntii •omnium. Hope is the dream of the vigilant. 4 Inst. 203.

Spes impunitati* continuum affectum tribu.it delinqnendi. The hope of impu- nity holds out a continual temptation to crime. 3 Inst. 236.

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## SPES RECUPERANDI.

Lat. The hope of recovery or recapture; the chance of re- taking property captured at sea, which pre- vents the captors from acquiring complete ownership of the property until they have definitely precluded it by effectual measures. 1 Kent, Comm. 101.

5e apparatus — Not carried into the 5th edition (1979).

## SPIGURNEL.

The sealer of the royal writs.

5e apparatus — Not carried into the 5th edition (1979).

## SPINSTER.

The addition given, in legal proceedings, and In conveyancing, to a wo- man who never has been married.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Great Expectations, 1861]**

(paraphrase) Miss Havisham, jilted at the altar, sits ever after in her rotting wedding dress, unmarried. (paraphrase)

Why: The archetypal literary spinster — a woman who never has married, the entry's legal addition.

## SPIRITUAL.

. Relating to religious or ecclesiastical persons or affairs, as distin- guished from “secular” or lay, worldly, or business matters.

As to spiritual “Corporation," “Courts,” and “Lords,” see those titles.

8PONTE VIRUM MULIER

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## SPIRITUALITIES OF A BISHOP.

Those profits which a bishop receives In his ecclesiastical character, as the dues arising from his ordaining and Instituting priests, and such like, In contradistinction to those profits which he acquires In his temporal ca- pacity as a baron and lord of parliament, and which are termed his “temporalities,” consisting of certain lands, revenues, and lay fees, etc. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 9:14, KJV]**

Even so hath the Lord ordained that they which preach the gospel should live of the gospel.

Why: The spiritualities of a bishop are profits received in his ecclesiastical character; the verse ordains the minister's living from his office.

## SPIRITUALITY OF BENEFICES.

In

ecclesiastical law. The tithes of land, etc. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SPIRITUOUS LIQUORS.

These are In- flammable liquids produced by distillation, and forming an article of commerce. See Blankenship v. State, 93 Ga. 814, 21 S. E. 130: State v. Hunger, 15 Vt 293; Allred v. State, 89 Ala. 112, 8 South. 56; Clifford v. State, 29 Wis. 329.

The phrase “spirituous liquor,” in a penal statute, cannot be extended beyond its exact lit- eral sense. Spirit is the name of an inflamma- ble liquor produced by distillation. Wine is the fermented juice of the grape, or a prepara- tion of other vegetables by fermentation; hence the term does not include wine. State v. Moore, 6 Blackf. (Ind.) 118.

SPITAL, or SPITTLE. A charitable foundation; a hospital for diseased people; a hospital. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SPLITTING A CAUSE OF ACTION.

Dividing a single cause of action, claim, or demand into two or more parts, and bring- ing suit for one of such parts only, intending to reserve the rest for a separate action. The plaintiff who does this is bound by his first Judgment, and can recover no more. 2 Black, Judgm. | 734.

5e apparatus — Not carried into the 5th edition (1979).

## SPOLIATION.

In English ecclesias- tical law. An injury done by one clerk or incumbent to another, in taking the fruits of his benefice without any right to them, but under a pretended title. 3 Bl.

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Comm. 90, 91.

The name of a suit sued out in the spirit- ual court to recover for the fruits of the church or for the church itself. Fitzh. Nat Brev. 85.

In torts. Destruction of a thing by the act of a stranger, as the erasure or altera- tion of a writing by the act of a stranger, is called “spoliation.” This has not the effect to destroy its character or legal effect. 1 Greenl. Ev. S 586; Medlin v. Platt County, 8 Mo. 239, 40 Am. Dec. 135; Crockett v. Thomason, 5 Sneed (Tenn.) 344.

5e apparatus — Not carried into the 5th edition (1979).

## SPOLIATOR.

Lat. A spoiler or de- stroyer. It Is a maxim of law, bearing chiefly on evidence, but also upon the value generally of the thing destroyed, that every- thing most to his disadvantage is to be pre- sumed against the destroyer, (spoliator,)

contra spoliatorem omnia prwsumvntur. 1 Smith, Lead. Cas. 315.

8 po lists* debet ante omnia reatltnl.

A party despoiled [forcibly deprived of pos- session] ought first of all to be restored. 2 Inst 714; 4. Reeve, Eng. Law, 18.

5e apparatus — Not carried into the 5th edition (1979).

## SPOLIUM.

Lat In the civil and com- mon law. A thing violently or unlawfully taken from another.

5e apparatus — Not carried into the 5th edition (1979).

## SPONDEO.

Lat In the civil law. I undertake; I engage. Inst. 3, 16, 1.

5e apparatus — Not carried into the 5th edition (1979).

## SPONDES7 SPONDEO.

Lat Do you

undertake? I do undertake. The most com- mon form of verbal stipulation in the Roman law. Inst 3, 16, 1.

Spondet peritiam artia. He promises the skill of his art; he engages to do the work in a skillful or workmanlike manner. 2 Kent, Comm. 588. Applied to the engage- ments of workmen for hire. Story, Bailm. | 428.

8PONSALIA, STTPULATIO SPONSA-

LITIA. Lat In the civil law. Espousal; betrothal; a reciprocal promise of future marriage

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SPONSIO.

Lat In the civil law. An engagement or undertaking; particularly such as was made in the

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form of an answer to a formal interrogatory by the other party. Calvin.

An engagement to pay a certain sum of money to the successful party in a cause. Calvin.

— Sponslo judicial!*. In Roman law. A ju- dicial wager corresponding in some respects to the “feigned issue" of modern practice.-Spon- ■io ludierm. A trifling or ludicrous engage- ment. such as a court will not sustain an ac- tion for. 1 Karnes, Eq. Introd. 34. 4n inform- al undertaking, or one made without the usual formula of interrogation. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SPONSIONS.

In international law. Agreements or engagements made by certain public officers (as generals or admirals in time of wnr) in behalf of their governments, either without authority or in excess of the authority under which they purport to be made, and which therefore require an express or tacit ratification.

5e apparatus — Not carried into the 5th edition (1979).

## SPONSOR.

A surety; one who makes s promise or gives security for another, partic- ularly a godfather in baptism. .

In the civil law. One who intervenes for another voluntarily and without being re- quested.

5e apparatus — Carried into the 5th edition (1979).

## SPONTE OBLATA.

Lat. A free gift or

present to the crown.

Sponte viram mulier fugien* et adul- ters facta, dote ina careat, nisi spomst sponte retracts. Co. Litt. 32b. Let s

8PORTULA

woman leaving her husband of her own ac- cord, and committing adultery, lose her dow- er, unless taken back by her husband of his own accord.

8PORTTJXA. Lat In Roman law. A largess, dole, or present; a pecuniary dona- tion; an official perquisite;, something over and above the ordinary fee allowed by law. Inst. 4, 6, 24.

5e apparatus — Not carried into the 5th edition (1979).

## SPOTJSAXS.

In old English law. Mutual promises to marry.

5e apparatus — Not carried into the 5th edition (1979).

## SPOUSE-BREACH.

In old English law. Adultery. Oowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Exodus 20:14, KJV]**

Thou shalt not commit adultery.

Why: Spouse-breach is old English law's name for adultery; the seventh commandment prohibits the act directly.

**[Humanity] — Humanity / Fiction & Film**

**[Leo Tolstoy, Anna Karenina, 1877]**

(paraphrase) Anna Karenina's adultery destroys her marriage, her standing, and at last herself. (paraphrase)

Why: The canonical novel of adultery: what breach of the marriage bond entails and costs.

## SPRING.

A fountain of water ; an issue of water from the earth, or the basin of wa- ter at the place of its issue. Webster. A natural chasm in which water has collected, and from which it either is lost by percola- tion or rises in a defined channel. Furner v. Seabury, 135 N. X. 60, 31 N. E. 1004; Blood- good v. Ayers, 108 N. X. 405, 15 N. E. 433, 2 Am. St Rep. 443; Proprietors of Mills v. Braintree Water Supply Co., 149 Mass. 478, 21 N. E 761, 4 L. R. A. 272.

— Spring-branch . In American land law. A branch of a stream, flowing from a spring. Wootton v. Redd’s Ex’r, 12 Grat. (Va.) 196.

5e apparatus — Not carried into the 5th edition (1979).

## SPRINGING USE.

See Uaz.

5e apparatus — Carried into the 5th edition (1979).

## SPTJTLZIE.

In Scotch law. The taking away or meddling with movables in another's possession, without the consent of the owner or authority of law. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## SPURIOUS.

Not proceeding from the •true source; not genuine; counterfeited. “A spurious bank-bill may be a legitimate im- pression from the genuine plate, but it must have the signatures of persons not the officers of the bank whence it purports to have issued, or else the names of fictitious persons. A spurious bill, also, may be an illegitimate im- pression from a genuine plate, or an impres- sion from a counterfeit plate, but it must have such signatures or names as we have just indicated. A bill, therefore, may be both counterfeit and forged, or both counterfeit and spurious, hut it cannot be both forged and spurious." Kirby v. State, 1 Ohio St 187.

8PURIUS. Lat. In the civil law. A bastard; the offspring of promiscuous cohabi- tation.

5e apparatus — Carried into the 5th edition (1979).

## SPY.

A person sent into an enemy’s camp to inspect their works, ascertain their strength and their intentions, watch their movements, and secretly communicate intel- ligence to the

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proper officer. By the laws of war among all civilized nntions. a spy is pun- ished with death. Webster. See Vattel, 3, 179.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 13:2, KJV]**

Send thou men, that they may search the land of Canaan, which I give unto the children of Israel:

Why: A spy is sent into the enemy's camp to inspect works and strength; the verse is the archetypal military reconnaissance commission, ordered as such.

**[Humanity] — Humanity / Fiction & Film**

**[Ian Fleming, Casino Royale, 1953]**

(paraphrase) Ian Fleming's James Bond, the glamorous secret agent, inverts the entry's grim reality — by the laws of war the captured spy faces death. (paraphrase)

Why: The archetypal fictional spy; the contrast between the glamour and the entry's 'punished with death' illuminates the definition's severity.

## SQUARE.

As used to designate a certain portion of laud within the limits of a city or

town, this term may be synonymous with "block,” that Is, the smallest subdivision which is bounded on all sides by principal streets, or it may denote a space (more or less rectangular) not built upon, and set apart for public passage, use, recreation, or orna- mentation, in the nature of a "park" but smaller. See Caldwell v. Rupert, 10 Bush (Ky.) 179; State v. Natal, 42 La. Ann. 612, 7 South. 781; Rowzee v. Pierce, 75 Miss. 816, 23 South. 307, 40 L. R. A. 402, 65 Am. St. Rep. 625; Methodist Episcopal Church v. Hoboken, 33 N. J. Law, 13, 97 Am. Dec. 696; Rev. Laws Mass. 1902, p. 531, c. 52, § 12.

5e apparatus — Carried into the 5th edition (1979).

## SQUATTER.

In American law. One who settles on another’s land, particularly on public lands, without a title. See O’Donnell v. McIntyre, 16 Abb. N. C. (N. X.) 84 ; Park- ersburg Industrial Co. v. Schultz, 43 W. Va. 470, 27 S. E. 255.

5e apparatus — Carried into the 5th edition (1979).

## SQUIRE.

A contraction of “esquire.''

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Miguel de Cervantes, Don Quixote, 1605]**

(paraphrase) Sancho Panza, Don Quixote's earthy squire, rides at his knight's side through every misadventure. (paraphrase)

Why: The archetypal literary squire — the esquire-attendant the entry defines.

## S8.

An abbreviation used in that part of a record, pleading, or affidavit, called the “statement of

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the venue.” Commonly trans- lated or read, “to-wit,” and supposed to be a contraction of “scilicet.”

Also in ecclesiastical documents, particular- ly records of early councils, “ss” is used as an abbreviation for subscripsi. Occasionally, in Law French, it stands for sons, “without,” e. g., “fairs feoffment ss son baron.” Bend- loe, p. 180.

5e apparatus — Not carried into the 5th edition (1979).

## STAB.

A wound inflicted by a thrust with a pointed weapon. State v. Cody, 18 Or. 506, 23 Pac. 891; Ward v. State, 56 Ga. 410; Ruby v. State, 7 Mo. 208.

5e apparatus — Not carried into the 5th edition (1979).

## STAB ILIA.

A writ called by that name, founded on a custom in Normandy, that where a man in power claimed lands in the possession of an inferior, be petitioned the prince that it might be put into his hands till the right was decided, whereupon he had this writ. Wharton.

Stabit prasnmptio donee probetnr in eontnuriwa. A presumption will stand good till the contrary is proved. Hob. 297 ; Broom, Max. 949.

5e apparatus — Not carried into the 5th edition (1979).

## STABLE-STAND.

In forest law. One of the four evidences or presumptions where- by a man was convicted of an intent to steal the king’s deer in the forest. This was when a man was found at his standing in the forest with a cross-bow or long-bow bent, ready to shoot at any deer, or else standing close by a tree with grey-hounds In a leash, ready to slip. Cowell; Manwood.

5e apparatus — Carried into the 5th edition (1979).

## STABULARIUS.

Lat. In the civil law. A stable-keeper. Dig. 4, 9, 4, 1.

5e apparatus — Not carried into the 5th edition (1979).

## STACHIA.

In old records. A dam or head, made to stop a water-course. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## STAFF-HERDING.

The following of cattle within a forest.

STAGE-RIGHT is a word which it has been attempted to introduce as a substitute for ‘‘the right of representation and perform- ance,” but it can hardly be said to be an ac- cepted term of English or American law. Sweet

5e apparatus — Not carried into the 5th edition (1979).

## STAGIARIUS.

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A resident Cowell.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## STAGNUM.

In old English law. A pool, or pond. Co. Litt 5a/ Johnson v. ltayner, 6 Gray (Mass.) 110.

5e apparatus — Not carried into the 5th edition (1979).

## STAKE.

A deposit made to answer an event as on a wager. See Harris v. White, 81 N. Y. 539; Porter v. Day, 71 Wis. 296, 37

N. W. 259; Mohr v. Miesen, 47 Minn. 228, 49 N. W. 862.

—Stakeholder primarily means a person with whom money is deposited pending the decision of a bet or wager, ( g . v.,) but it is more often used to mean a person who holds money or prop erty which is claimed by rival claimants, but in which he himself claims no interest Sweet And see Oriental Bank v. Treinont Ins. Co., 4 Mete. (Mass.) 10; Fisher v. Hildreth, 117 Mass. 562 ; Wabash R. Co. v. Flannigan, 95 Mo. App. 477, 75 S. W. 691. .

STALE, ». In Saxon law. Larceny. Wharton.

STALE, ad). In the language of the courts of equity, a “stale” claim or demand Is one which has not been pressed or* asserted for so long a time that the owner or creditor Is chargeable with laches, and that changes occurring meanwhile in the relative situation of the parties, or the intervention of new Interests or equities, would render the en- forcement of the claim or demand against conscience. See The Galloway C. Morris, 2 Abb. U. S. 164, 9 Fed. Cas. 1,111 ; King v. White, 63 Vt. 158, 21‘Atl. 535, 25 Am. St. Rep. 752; Ashurst v. Peck, 101 Ala. 499, 14 South. 541; The Harriet Ann, 11 Fed. Cas. 597.

5e apparatus — Carried into the 5th edition (1979).

## STALLAGE.

The liberty or right of pitching or erecting stalls in fairs or markets, or the money paid for the same. 1 Steph. Comm. 664.

5e apparatus — Not carried into the 5th edition (1979).

## STAILARIUS.

In Saxou law. The prwfcctus stabuli, now master of the horse. Sometimes one who has a stall in a fair or market

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## STAMP.

An impression made by public authority, in pursuance of law, upon paper or parchment, upon which certain legal pro- ceedings, conveyances, or contracts are re- quired to be written, and for which a tax or duty is exacted.

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A small label or strip of paper, hearing a particular device, printed and sold by the

government, and required to be attached to mall-matter, and to some other articles subject to duty or excise.

—Stamp acts. In English law. Acts regulat- ing the stamps upon deeds, contracts, agreements, papers in law proceedings, bills and notes, letters, receipts, and other papers.— Stamp do- ties. Duties imposed upon and raised from stamps upon paAhment and paper, and forming a branch of the perpetual revenue of the king- dom. 1 Bi. Comm. 323.

5e apparatus — Carried into the 5th edition (1979).

## STANCE.

In Scotch law. A resting place; a field or place adjoining a drove- road, for resting and refreshing sheep and cattle on their journey. 7 Dell, App. Cas. 53, 57, 58.

5e apparatus — Not carried into the 5th edition (1979).

## STAND.

To abide; to submit to; as “to stand a trial.” »

To remain as a thing is; to remain in force. Pleadings demurred to and held good are allowed to stand.

To appear in court.

— Standing aside Jurors. A practice by which, on tne drawing of a jury for a criminal trial, the prosecuting officer puts aside a juror, provisionally, until the panel is exhausted, without disclosing his reasons, instead of being re- quired to challenge him and show cause. The statute 33 Edw. I. deprived the crown of the power to challenge jurors without showing cause, and the practice of standing aside jurors was adopted, in England, as a method of evad- ing its provisions. A similar practice is in use in Pennsylvania. See Warren v. Com., 37 Pa. 54; Zell v. Com., 94 Pa. 272; Haines v. Com., 100 Pa. 322. But in Missouri, it is said that the words "stand aside” are the usual formulg. used in impaneling a jury, for rejecting a juror. State v. Hultz, 106 Mo. 41, 16 S. W. 94a — Standing by is used in law as implying knowledge, under such circumstances as ren- dered it the duty of the possessor to communi- cate it; and it is such knowledge, and not the mere fact of “standing by,” that lays the foun- dation of responsibility. The phrase does not import an actual presence, “but implies knowl- edge under such circumstances as to render it the duty of the possessor to communicate it.” Anderson v. Hubble, 93 Ind. 573. 47 Am. Itep. •394 ; Gatling v. Rodman, 6 Ind. 292; Richard- son v. Cbickering, 41 N. H. 380, 77 Am. Dec. 769; Morrison v. Morrison, 2 Dana (Ky.) i6- —Standing mute. A prisoner, arraigned for treason or felony, was said to "stand mute.” when he refused to plead, or answered foreign to the purpose, or. after a plea of not guilty, would not put himself upon the country.— Standing orders are rules and forms regulat- ing the procedure of the two houses of parlia- ment, each having its own. They are of equal force in every parliament, except so far as they are altered or suspended from time to time. Cox, Inst. 136; May, Pari. Pr. 185. — Standing seised to nses. A covenant to stand seised to uses is one by which the owner of an estate cot- enants to hold the same

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to the use of another person, usually a relative, and usually in consid- eration of blood or marriage. It is a species of conveyance depending for its effect on the stat- ute of uses.

5e apparatus — Carried into the 5th edition (1979).

## STANDARD.

An ensign or flag used in war.

STANDARD OF WEIGHT, or MEAS- URE. A weight or measure fixed and pre- scribed by law, to which all other weights and measures are required to correspond.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 8, cl. 5]**

The standard 'fixed and prescribed by law' that the entry defines is, in the American system, fixed by Congress, which has power '[t]o coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures.'

Why: The body defines the standard as 'fixed and prescribed by law' without saying by whom; the footnote supplies the constitutional grant of that fixing power — the operative text behind the definition, quoted verbatim, a…

**[Scripture] — Scripture**

**[Leviticus 19:35-36, KJV]**

Ye shall do no unrighteousness in judgment, in meteyard, in weight, or in measure: Just balances, just weights, a just ephah, and a just hin, shall ye have:

Why: The standard of weight or measure is the legally fixed weight/measure; the verse commands just balances, weights, ephah, and hin by law.

## STANNARIES.

A district which in- cludes all parts of Devon and Cornwall where some tin work is situate and in actual opera- tion. The tin miners of the stannaries have certain peculiar customs and privileges.

— Stannary courts. Courts in Devonshire and Cornwall for the administration of justice among the miners and tinners. These courts were held before the lord warden and his depu- ties by virtue of a privilege granted to the work- ers of the tin-mines there, to sue and be sued in their own courts only, in order that they might not be drawn away from their business by hav- ing to attend law-snits in distant courts. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## STAPLE.

In English law. A mart or market. A place where the buying and sell- ing of wool, lead, leather, and other articles were put under certain terms. 2 Reeve, Eng. Law, 393.

In international law. The right of sta- ble, as exercised by a people upon foreign merchants, is defined to be that they may not allow them to set their merchandises and wares to sale

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but in a certain place. This practice is not in use in the United States.

1 Chit. Com. Law, 103.

—Staple Inn. An inn of chancery. See Inns of Chancery.— Statute-staple. In English law. A security for a debt acknowledged to be due, so called from its being entered into be- fore the mayor of the staple, that is to say, the grand mart for the principal commodities or manufactures of the kingdom, formerly held by act of parliament in certain trading towns. In other respects it resembled the statute-merchant, (a. v.,) but like that has now fallen into disuse.

2 Bl. Comm. 160; 1 Steph. Comm. 287.

5e apparatus — Carried into the 5th edition (1979).

## STARBOARD.

In maritime law. The right-hand side of a vessel when the observer faces forward. "Starboard tack," the course of vessel when she has the wind on her star- board bow. Burrows v. Gower (D. C.) 119 Fed. 617.

STAR-CHAMBER was a court which originally had jurisdiction in cases where the ordinary course of justice was so much obstructed by one party, through writs, com- bination of maintenance, or overawing influ- ence that no inferior court would find its process obeyed. The court consisted of the privy council,' the common-law judges, and :(it seems) all peers of parliament. In the reign of Henry VIII. and his successors, the jurisdiction of the court was illegally extend- ed to such a degree (especially In punishing disobedience to the king's arbitrary procla- mations) that it became odious to the nation, and was abolished. 4 Steph. Comm. 310; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## STARE DECISIS.

Lat. To stand by de- cided cases; to uphold precedents; to main- tain former adjudications. 1 Kent, Comm. 477.

5e apparatus — Not carried into the 5th edition (1979).

## STARE IN JUDICIO.

Lat. To appear before a tribunal, either as plaintiff or de- fendant.

Bx..Law Dict.(2d Ed.)— 70

STARR, or STARRA. The old term for contract or obligation among the Jews, be- ing a corruption from the Hebrew word " shetar ,'' a covenant. By an ordinance of Richard I., no starr was allowed to be valid, unless deposited in one of certain repositories established by law, the most considerable of which was in the king's exchequer at West- minster ; and Blackstone conjectures that the room in which these chests were kept was thence called the "starr-chamber." 4 Bl. Comm. 266, 267, note a.

Stat pro ratione voluntas. The will stands in place of a reason. Bears v. Shafer, 1 Barb. (N. Y.) 408, 411; Farmers' Loan & Trust Co. v. Hunt, 16 Barb. (N. Y.) 514, 525.

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Stat pro rations voluntas populi. The

will of the people stands in place of a reason. People v. Draper, 25 Barb. (N. Y.) 344, 376.

STATE, v. To express the particulars of a thing in writing or in words; to set down or set forth in detail.

To set down in gross; to mention in gen- eral terms, or by way of reference ; to refer. Utica v. Richardson, 6 Hill (N. Y.) 300.

STATE, ». A body politic, or society of men, united together for the purpose, of pro- moting their mutual safety and advantage, by the joint efforts of their combined strength. Cooley, Const. Lim. 1.

One of the component commonwealths or states of the United States of America.

The people of a state, in their collective capacity, considered as the party wronged by a criminal deed; the public; as in the title of a cause, “The State vs. A. B.”

The section of territory occupied by one of the United States.

—Foreign state. A foreign country or nation. ‘The several United States are considered "for- eign” to each other except as regards tbeir re- lations as common members of the Union.— State’s evidence. See Evidence. — State officers. Those whose duties concern the state at large or the general public, or who are au- thorized to exercise their official functions throughout the entire state, without limitation to any political subdivision of the state. _ In another sense, officers belonging to or exercising authority under one of the states of the Union, as distinguished from the officers of the United States. See In re Police Com’rs. 22 R. I. 654. 49 Atl. 30; State v. Burns, 38 Fla. 378. 21 South. 290: People v. Nixon, 158 N. Y. 221, 52

N. E. 1117. — State paper. A document pre- pared by, or relating to, the political department of the government of a state or nation, and con- cerning or affecting the administration of its government or its political or international re- lations. Also, a newspaper, designated by pub- lic authority, as the organ for the publication of public statutes, resolutions, notices, and ad- vertisements.—State tax. A tax the proceeds of which are to be devoted to the expenses of the state, as distinguished from taxation for lo- cal or municipal purposes. See Youngblood v. Sexton, 32 Mich. 413, 20 Am. Rep. 654 ; State v. Auditor of State. 15 Ohio St. 482.— State trial. A trial for a political offense.— State Trials. A work in thirty-three volumes octavo, containing all English trials for offenses against

the state and others partaking in some degree of that character, from the ninth year of Hen. II. to the first of Geo. IV.

5e apparatus — Not carried into the 5th edition (1979).

## STATE OF FACTS.

Formerly, when a master in chancery was directed by the court of chancery to make an Inquiry or investiga- tion into any matter arising out of a suit, and which could not conveniently be brought before the court itself, each party in the suit carried in before the master a statement showing how the party bringing it in repre- sented the matter in

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question to be; and this statement was technically termed a "state of facts," and formed the ground upon which the evidence was received, the evidence be- ing, in fact, brought by one party or the other, to prove his own or disprove his op- ponent's state of facts. And so now, a state of facts means the statement made by any one of his version of the facts. Brown.

5e apparatus — Carried into the 5th edition (1979).

## STATE OF FACTS AND PROPOSAL.

In English lunacy practice, when a person has been found a lunatic, the next step is to submit to the master a scheme called a “state of facts and proposal,” showing what is the position in life, property, aqd income of the lunatic, who are his next of kin and heir at law, who are proposed as bis committees, and what annual sum is proposed to be allowed for his maintenance, etc. From the state of facts and the evidence adduced in support of it, the master frames his report Elmer, Lun. 22; Pope, Lun. 79; Sweet

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## STATE OF THE CASE.

A narrative of the facts upon which the plaintiff relies, sub- stituted for a more formal declaration, in suits in the inferior courts. The phrase is used In New Jersey.

5e apparatus — Carried into the 5th edition (1979).

## STATED.

Settled; closed. An account stated means an account settled, and at an end. Pull. Acc'ts, 33. “In order to consti- tute an account stated, there must be a state- ment of some certain amount of money being due, which must be made either to the party himself or to some agent of his.” 6 Alees. ft

W. 007.

— Stated meeting;. A meeting of a board of directors, board of officers, etc., held at the time appointed therefor by law, ordinance, by-law, or other regulation ; as distinguished from “spe- cial” meetings, which are held on call as the occasion may arise, rather than at a regularly appointed time, and from adjourned meetings. See Zulich v. Bowman, 42 Pa. 87.— Stated term. A regular or ordinary term or session of n court for the dispatch of its general business, held nt the time fixed by law or rule; as dis- tinguished from a upccial term, held out of the due order or for the transaction of particular business.

5e apparatus — Carried into the 5th edition (1979).

## STATEMENT.

In a general sense, an allegation; a declaration of matters of fact. The term has come to be used of a variety of formal narratives of facts, required by lnw in various jurisdictions as the foundation of judicial or official proceedings.

— Statement of affairs. In English bank- ruptcy practice, a bankrupt or debtor who has

presented a petition for liquidation or composi- tion must produce at the first meeting of

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cred- itors a statement of his affairs, giving a list of his creditors, secured and unsecured, with the value of the securities, a list of bills discount- ed, and a statement of his property. Sweet. —Statement of claim. A written or printed statement by the plaintiff in an action in the English high court, showing the facts on which he relies to support his claim against the de- fendant, and the relief which he claims. It is delivered to the defendant or his solicitor. The delivery of the statement of claim is usually the next step after appearance, and is the commence- ment of the pleadings. Sweet.— Statement of defense. In the practice of the English high court, where the defendant in an action docs not demur to the whole of the plaintiff's claim, he delivers a pleading called a "statement of de- fense." The statement of defense deals with the allegations contained in the statement of claim, (or the indorsement on the writ, if there is no statement of claim,) admitting or denying them, and, if necessary, stating fresh facts in expla- nation or avoidance of those alleged by the plaintiff. Sweet— Statement of ptrtionlsn. In English practice, when the plaintiff claims a debt or liquidated demand, but has not indors- ed the writ specially, (i. e., indorsed on it the particulars of his claim under Order iii. r. 6.) and the defendant fails to appear, the plaintiff may file a statement of the particulars of his claim, and after eight days enter judgment for the amount, as if the writ bad been specially in- dorsed. Court Rules, xiii. 5; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## STATESMAN.

A freeholder and farmer In Cumberland. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## STATIM.

Lat. Forthwith; Immediate- ly. In old English law, this term meant ei- ther "at once," or "within a legal time," (. e.. such time as permitted the legal and regular performance of the act In question.

5e apparatus — Not carried into the 5th edition (1979).

## STATING AN ACCOUNT.

Exhibiting, or listing In their order, the items which make up an account.

5e apparatus — Carried into the 5th edition (1979).

## STATING FART OF A BILL.

That

part of a bill in chancery in which the plain- tiff states the facts of his case; it Is distin- guished from the charging part of the bill and from the prayer.

5e apparatus — Not carried into the 5th edition (1979).

## STATION.

In the civil law. A place where ships may ride in safety. Dig. 50, 16. 59.

5e apparatus — Carried into the 5th edition (1979).

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## STATIONERS' HALL.

Ih English law. The hall of the stationers’ company, at which every person claiming copyright in a hook must register his title, in order to be able to bring actions against persons infringing it. 2 Steph. Comm. 37-39.

5e apparatus — Not carried into the 5th edition (1979).

## STATIONERY OFFICE.

In English law. A government office established as a department of the treasury, for the purpose of supplying government offices with station- ery and bookB, and of printing and publish- ing government palters.

5e apparatus — Carried into the 5th edition (1979).

## STATIST.

A statesman; a politician; one skilled In government.

5e apparatus — Not carried into the 5th edition (1979).

## STATISTICS.

That part of political sci- ence which is concerned In collecting and ar

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ranging facts illustrative of the condition and resources of a state. The subject is sometimes divided into (1) historical statis- tics, or facts which illustrate the former con- dition of a state; (2) statistics of population; (3) of revenue; (4) of trade, commerce, and navigation; (5) of the moral, social, and phys- ical condition of the people. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## STATU LIBER.

Lat. In Roman law. One who is made free by will under a condi- tion ; one who has his liberty fixed and ap- pointed at a certain time or on a certain con- dition. Dig. 40, 7.

5e apparatus — Not carried into the 5th edition (1979).

## STATU LIBERI.

Lat In Louisiana. Slaves for a time, who had acquired the right of being free at a time to come, or on a con- dition which was not fulfilled, or in a certain event which had not happened, but who in the mean time remained in a state of slavery. Civ. Code La. (Ed. 1838) art. 37.

5e apparatus — Not carried into the 5th edition (1979).

## STATUS.

The status of a person is his legal position or condition. Thus, when we say that the status of a woman after a decree nisi for the dissolution of her marriage with her husband has been made, but before it has been made absolute, is that of a married wo- man, we mean that she has the same legal rights, liabilities, and disabilities as an ordi- nary married woman. The term is chiefly applied to persons under disability, or per- sons who have some

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peculiar condition which prevents the general law from applying to them in the same way as it does to ordinary persons. Sweet. See Barney v. Tourtellotte, 138 Mass. 108; De la Montanya v. De la Montanya, 112 Cal. 115, 44 Pac. 345, 32 L. R.

A. 82, 53 Am. St Rep. 165 ; Dunham v. Dun- ham, 57 111. App. 497.

There are certain rights and duties, with cer- tain capacities and incapacities to take rights and incur duties, by which persona, as subjects of law, are variously determined to certain classes. The rights, duties, capacities, or inca- pacities which determine a given person to any of these classes, constitute a condition or status with which the person is invested. AusL Jur. S 973.

— Status de manerlo. The assembly of the tenants in the court of the lord of a manor, in order to do their customary suit.— Status of Irremovability. In English law. The right acquired by a pauper, after one year's residence in any parish, not to be removed therefrom.— Status quo. The existing state of things at any given date. Status quo ante bettum, the state of things before the war.

Statute pro publico commodo late in- terpretantur. Jenk. Cent 21. Statutes made for the public good ought to be liberal- ly construed.

Statute suo oluduntur terrltorio, nee ultra terrltorium dlsponunt. Statutes are confined to their own territory, and have no extraterritorial effect. Woodworth v. Spring, 4 Allen (Mass.) 324.

STATUTABLE, or STATUTORY, is

that which is introduced or governed by statute law, as "opposed to the common law or equity. Thus, a court Is said to have stat- utory jurisdiction when jurisdiction is given to it in certain matters by act of the legisla- ture.

STATUTE, v. In old Scotch law. To ordain, establish, or decree.

STATUTE, n. An act of the legislature ; a particular law enacted and established by the will of the legislative department of gov- ernment, expressed with the requisite for- malities.

Lb foreign and civil law. Aijy particular municipal law or usage, though resting for its authority on judicial decisions, or the practice of nations. 2 Kent, Comm. 456. The whole municipal law of a particular state, from whatever source arising. Story, Confi. Laws, | 12.

"Statute" also sometimes means a kind of bond or obligation of record, being an ab- breviation for "statute merchant" or "stat- ute staple." See infra.

— Affirmative statute. See Affirmative:. —Declaratory statute. See Declaratory. —Enabling statute. See that title.— Expos- itory statute. See that title.— General statute. A statute relating to the whole com- munity, or concerning all persons generally, as distinguished from a private or special statute. 1 Bl. Comm. 85, 86 ; 4 Coke, 75a. — Looal stat- ute. Such a statute as has for its object the interest of some particular locality, as the formation of a road, the alteration of the course of a river, the formation of a public market in n particular district, etc.— Negative statute. A statute expressed in negative terms; a stat- ute which prohibits a thing from being done, or declares wnnt shall not be done.— Penal stat- ute. See

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Penal. — Perpetual statute. One which is to remain in force without limitation as to time; one which contains no provision for its repeal, abrogation, or expiration at any future time. — Personal statutes. In foreign and modern civil law. Those statutes which have principally for their object the person, and treat of property only incidentally. Story, Confi. Laws, f 13. A personal statute, in this sense of the term, is a law, ordinance, regula- tion, or custom, the disposition of which affects the person and clothes him with a capacity or Incapacity, which he does not change with every change of abode, but which, upon principles of justice and policy, he is assumed to carry with him wherever he goes. 2 Kent, Comm. 456. The term is also applied to statutes which, in- stead of being general, are confined in their op- eration to one person or group of persons. Bank of Columbia v. Walker, 14 Lea (Tenn.) 308; Saul v. Creditors. 5 Mart. N. S. (La.) 591, 16 Am. Dec. 212.— Private statute. A statute which operates only upon particular persons, and private concerns. 1 Bl. Comm. 86. An act which relates to certain individuals, or to particular classes of men. Dwar. St. 629; State v. Chambers, 93 N. C. 600.— Public statute. A statute enacting a universal rule which regards the whole community, as distin- guished from one which concerns only particu- lar individuals and affects only their private rights. See Code Civ. Proc. Cal. § 1898. — Real statutes. In the civil law. Statutes which have principally for their object proper- ty, and which do not speak of persons, except in relation to property. Story, Confi. Laws, f 13; Saul v. His Creditors, 5 Mart N. S. (La.) 582, 16 Am. Dec. 212.— Remedial statute. See Remedial. — Revised statutes. A body

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of statutes which have been revised, collected, arranged in order, and re-enacted hs a whole; this is the legal title of the collections of com- piled laws of several of the states and also of the United States.— Speeial statute. One which operates only upon particular persona and private concerns. 1 Bl. Comm. 80. Dis- tinguished from a general or public statute. —Statute fair. In English law. A fair at which laborers of both sexes stood and offered themselves for hire; sometimes called also “Mop.” — Statute-merchant. In English law. A security for a debt acknowledged to be due, entered into before the chief magistrate of scans trading town, pursuant to the statute 13 Edw.

I. De ilcrcatoribus, by which not only the body of the debtor might be imprisoned, and his goods seized in satisfaction of the debt, but also his lands might be delivered to the creditor till out of the rents and profits of them the debt be satisfied. 2 Bl. Comm. 160. Now fallen in- to disuse. 1 Steph. Comm. 287. See Yates v. People. C Johns. (N. Y.) 404. — Statute of ac- cumulations. In English law. The statute 39 & 40 Geo. III. c. 98, forbidding the accumu- lation, beyond a certain period, of property set- tled by deed or will.— Statute of allegiance de facto. An act of 11 Hen. VII. c. 1, re- quiring subjects to give their allegiance to the actual king for the time being, and protecting them in so doing. — Statute of distributions. See Distribution. — Statute of Elisabeth. In English law. The statute 13 Eliz. c. 5, against conveyances made in fraud of creditors. —Statute of frauds. See Kbauds, Statute OK.— Statute of Gloucester. In English law. The statute 6 Edw. I..c. 1, A. D. 1278. It takes its name from the place of its enact- ment, and was the first statute giving costs in actions. 3 Bl.

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Comm. 399. — Statute of la- borers. See Laborer. — Statute of limita- tions. See Limitation.— Statute of uses. See Use. — Statute of wills. In English law. The statute 32 Hen. VIII. c. 1, which enacted that all persons being seised in fee-simple (ex- cept feme* covert, infants, idiots, and persons of non-sane memory might, by will ana testa- ment in writing, devise to any other person, except to bodies corporate, two-thirds of their lands, tenements, and hereditaments, held in chivalry, and the whole of those held in socage. 2 Bl. Comm. 375. — Statute roll. A roll upon which an English statute, after receiving the royal assent, was formerly entered.— Statute staple. Sec Staple.— Statutes at large. Statutes printed in full and in the order of their enactment, in a collected form, as distin- guished from any digest, revision, abridgment, or compilation of them. Thus the volumes of “United States Statutes at Large,” contain all the acts of congress in their order. The name is also given to an authentic collection of the various statutes which have been passed by the British parliament from very early times to the present day.

Statutes in derogation of common law must be strictly construed. Cooley, Const. Lim. 75, note; Arthurs, Appeal of, 1 Grant Cas. (Pa.) 57.

5e apparatus — Carried into the 5th edition (1979).

## STATUTI.

Lat. In Roman law. Li- censed or registered advocates ; members of the college of advocates. The number of these was limited, and they enjoyed special privileges from the time to Constantine to that of Justinian.

5e apparatus — Carried into the 5th edition (1979).

## STATUTORY.

Relating to a statute; created or defined by a statute ; required by a statute ; conforming to a statute.

—Statutory crime. See Crime.— Statutory dedication. See Dedication.— Statutory exposition. When the language of a statute

is ambiguous, and any subsequent enactment involves a particular interpretation of the for- mer act, it is said to contain a statutory expo- sition of the former act. Wharton.— Statuto- ry foroolosnre. See Foreclosure.— Stat- utory obligation. An obligation— whether to pay money, perform certain acts, or discharge certain duties— which is created by or arises out of a statute, as distinguished from one founded upon acts between parties or jural re- lationships.—Statutory release. A convey- ance which superseded the old comiiound assur- ance by lease and release. It was created by St. 4 & 5 Viet c. 21, which abolished the lease for a year.

5e apparatus — Carried into the 5th edition (1979).

## STATUTUM.

Lat. In tbe civil law.

Established ; determined. A term applied to judicial action. Dig. 50, 16, 46, pr.

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In old English law. A statute; an act of parliament.

— Statntnm do meroatoribns. The statute

of Acton Burnell. ( q . v.)— Statntnm Hlber- nise de cohwredlbus. Tbe statute 14 Hen.

III. The third public act in the statute-book. It has been pronounced not to be a statute. In the form of it, it appears to be an instruction given by the king to bis justices in Ireland, directing them how to proceed in a certain point where they entertained a doubt. It seems the justices itinerant in that country had a doubt, when land descended to sisters, whether the younger sisters ought to hold of the eldest, and do homage to her for their several portions, or of the chief lord, and do homage to him ; and certain knights had been sent over to know what the practice was in England in such a case. 1 Reeve, Eng. Law, 259. — Statutum sessionum. In old English law. The statute session ; a meeting in every hundred of consta- bles and householders, by custom, for the order- ing of servants, and debating of differences be- tween masters and servants, rating of wages, etc. 5 Eliz. c. 4.— Statutum Wallis. Tbe statute of Wales. The title of a statute passed In the twelfth year of Edw. I., being a sort of constitution for the principality of Wales, which was thereby, in a great measure, put on tbe footing of England with respect to its law* and tbe administration of justice. 2 Reeve, Eng. Law, 93, 94.

Statutum afflrmativum non derogat eommunl legi. Jenk. Cent. 24. An affirma- tive statute does not derogate from the com- mon law.

Statutum ex gratia regia dieitur, qsaa- do rex digaatur cedere de jure suo regio, pro eommodo et quiete populi sui. 2

Inst 878. A statute Is said to lte by the grace of the king, when the king deigns to yield some portion of his royal rights for the good and quiet of his people.

Statutum generaliter est imtelligem- dnm quando verba statuti sunt spec tails, ratio autom gencralis. When the words of a statute are special, but the reason of It general, the statute is to be understood gen- erally. 10 Coke, 101.

Statutum specials statu to special! sos derogat. Jenk. Cent. 199. One special stat- ute does not take from another special stat- ute.

5e apparatus — Not carried into the 5th edition (1979).

## STAURUM.

In old records. A store, or stock of cattle. A term of common occur-

8TET PROCESSUS

recce In the accounts of monastic establish- ments. Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## STAY.

In practice. A stopping ; the act of arresting a Judicial proceeding, by the or- der of a court See In re Schwara (D. C.) 14 Fed. 788.

—Stay laws. Acts of the legislature prescrib- ing a stay of execution in certain cases, or a

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stay of foreclosure of mortgages, or closing the courts for a limited period, or providing that suits shall not be instituted until a certain time after the cause of action arose, or otherwise suspending legal remedies; designed for the re- lief of debtors, in times of general distress or financial trouble.— Stay of execution. The stopping or arresting of execution on a judg- ment, that is, of the judgment-creditor’s right to issue execution, for a limited period. This is given by statute in many jurisdictions, as a privilege to the debtor, usually on his furnish- ing bail for the debt, costs, and interest. Or it may take place by agreement of the parties. See National Docks, etc., Co. v. Pennsylvania

R. Co., 54 N. J. Eq. 167, 33 Atl. 938.— Stay of proceedings. The temporary suspension of the regular order of proceedings in a cause, by direction or order of the court, usually to await the action of one of the parties in regard to some omitted step or some act which the court has required him to perform as incidental to the suit; as where a non-resident plaintiff has been ruled to give security for costs. See Wallace v. Wallace, 13 Wis. 228: Lew ton v. Hower, 18 Fla. 876; Rossi ter v. AStna L. Ins. Qo., 98 Wis. 466, 71 N. W. 898.

5e apparatus — Not carried into the 5th edition (1979).

## STEAL.

This term Is commonly used In Indictments Tor larceny, (“take, steal, and qarry away,") and denotes the commission of theft. But, In popular usage, “stealing" seems to be a wider term than “larceny," In- asmuch as It may Include the unlawful ap- propriation of things which are not technic- ally the subject of larceny, e. g., Immova- bles. See Randall v. Evening News Ass’n, 101 Mich. 561, 60 N. W. 301 ; People v. Du- ma r, 42 Hun (N. Y.) 85; Com. v. Kelley, 184 Mass. 320, 68 N. E. 346 ; Holmes v. Gil- man, 64 Hun, 227, 19 N. Y. Supp. 151 ; Dun- nell v. Flake, 11 Mete. (Mass.) 554 ; Barnhart v. State, 154 Ind. 177, 56 N. E. 212.

— Stealing children. See Kidnapping.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: Steal is the indictment term for larceny — 'take, steal, and carry away'; the eighth commandment prohibits the act directly.

**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'Gimme the Loot', 1994]**

"When it's time to eat a meal, I rob and steal" — Black's: "steal" "denotes the commission of theft." The verse states motive and act plainly: robbery and theft as subsistence ("'Cause mom dukes ain't giving me shit / So for the bread and butter I leave niggas in the gutter").

Why: The line is verbatim-verified against multiple lyric sources; "I rob and steal" is the plainest possible lyrical statement of the legal term's content.

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Miserables, 1862]**

(paraphrase) Jean Valjean steals a loaf of bread to feed his sister's children and pays with nineteen years in the galleys. (paraphrase)

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Why: The canonical literary theft; illuminates larceny — the unlawful appropriation the entry defines — and its disproportion.

## STEALTH.

Theft is so called by some anelent writers. “Stealth Is the wrongful taking of goods without pretense of title.” Finch, Law, b. 3, c. 17.

5e apparatus — Not carried into the 5th edition (1979).

## STEELBOW GOODS.

In Scotch law. Corns, cattle, straw, and Implements of hus- bandry delivered by a landlord to his tenant, by which the tenant Is enabled to stock aud labor the farm; In consideration of which he becomes bound to return articles equal In quantity and quality, at the expiry of the lease. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## STELLIONATAIRE.

Fr. In French law. A party who fraudulently mortgages property to which he has no title.

5e apparatus — Carried into the 5th edition (1979).

## STEIXXONATE.

In Scotch law. The crime of aliening the same subject to differ- ent persons. 2 Karnes, Eq. 40.

5e apparatus — Not carried into the 5th edition (1979).

## STELLIONATUS.

Lat In the civil law. A general name for any kind of fraud not falling under any specific class. But the term is chiefly applied to fraud practiced in the sale or pledging of property ; as, selling the same property to two different persons, selling another's property as one's own, plac- ing a second mortgage on property without disclosing the existence of the first, etc.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:11, KJV]**

Ye shall not steal, neither deal falsely, neither lie one to another.

Why: Stellionatus is the general name for fraud falling under no specific head; 'neither deal falsely' is the general-fraud prohibition.

## STENOGRAPHER.

One who is skilled In the art of short-hand writing ; one whose business is to write in short-hand. See Ry- nerson v. Allison, 30 S. C. 534, 9 S. E. 656; In re Appropriations for Deputy State Of- ficers, 25 Neb. 662, 41 N. W. 643 ; Chase v. Vandergrift, 88 Pa. 217.

5e apparatus — Not carried into the 5th edition (1979).

## STEP-DAUGHTEB.

The daughter . of one's wife by a former husband, or of one’s husband by a former wife.

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5e apparatus — Not carried into the 5th edition (1979).

## STEP-FATHER.

The man who mar- ries a widow, she having a child by her former marriage, is step-father to such child.

5e apparatus — Carried into the 5th edition (1979).

## STEP-MOTHER.

The woman who mar- ries a widower, he having a child by his former wife, becomes Btep-mother to such child.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Perrault, Cinderella, 1697]**

(paraphrase) Cinderella's stepmother sets her stepdaughter among the cinders while favoring her own daughters. (paraphrase)

Why: The archetypal literary stepmother — the woman who marries a widower with a child, as defined. (STEP-DAUGHTER, STEP-FATHER, STEP-SON left bare; one note carries the family.)

## STEP-SON.

The son of one’s wife by a former husband, or of one’s hnsband by a former wife.

STERBRECHE, or STREBRICH. The

breaking, obstructing, or straitening of a way. Termes de la Ley.

5e apparatus — Carried into the 5th edition (1979).

## ST&RE.

A French measure of solidity, used In measuring wood. It is a cubic meter.

5e apparatus — Not carried into the 5th edition (1979).

## STERILITY.

Barrenness ; incapacity to produce a child.

5e apparatus — Not carried into the 5th edition (1979).

## STERLING.

In English law. Current or standard coin, especially sliver coin ; a standard of coinage.

STET BHiLA. If the plaintiff in a plaint in the mayor’s court of London has attached property belonging to the defendant and ob- tained execution against the garnishee, the defendant, if he wishes to contest the plain- tiff’s claim, and obtain restoration of his property, must Issue a scire facias ad dis- probandum debitum; If the only question to be tried Is the plaintiff’s debt, the plaintiff In appearing to the scire facias prays stet billa “that his bill original," i. e., his orig- inal plaint, "may stand, and that the defend- ant may plead thereto.” The action then pro- ceeds in the usual way as If the proceedings in attachment (which are founded on a ficti- tious default of the defendant in appearing to the plaint) had not taken place. Brand,

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F. Attachm. 115; Sweet.

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## STET PROCESSUS.

Stet processus Is an entry on the roll in the nature of a judg-

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ment of a direction that all further proceed- ings shall be stayed, (1. e., that the process may stand,) and It Is one of the ways by which a suit may be terminated by an act of the party, as distinguished from a termi- nation of it by Judgment, which la the act of the court It was used by the plaintiff when he wished to suspend the action with- out suffering a nonsuit. Brown.

5e apparatus — Carried into the 5th edition (1979).

## STEVEDORE.

A person employed in loading and unloading vessels. The Senator (D. C.) 21 Fed. 191 ; Rankin v. Merchants' & M. Transp. Co., 73 Ga. 232, 54 Am. Rep. 874 ; The Elton, 83 Fed 521, 31 C. C. A. 496.

5e apparatus — Carried into the 5th edition (1979).

## STEWARD.

This word signifies a man appointed In the place or stead of another, and generally denotes a principal officer within his jurisdiction. Brown.

— Land steward. See Land.— Steward of a manor. An important officer who has the gen- eral management of all forensic matters con- nected with the manor of which he is steward. He stands in much the same relation to the lord of the manor as an under-sheriff does to the sheriff. Cowell. — Steward of all England. In old English law. An officer who was invest- ed with various powers ; among others, to pre- side on the trial of peers. — Steward of Scot- land. An officer of the highest dignity and trust. He administered the crown revenues, superintended the affairs of the household, and possessed the privilege of holding the first place in the army, next to the king, in the day of battle. From this office the royal house of Stu- art took its name. But the office was sunk on their advancement to the throne, and has never since been revived. Bell.

STEWARTRY, in Scotch law, is said to be equivalent to the English "county." See Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 12:42, KJV]**

And the Lord said, Who then is that faithful and wise steward, whom his lord shall make ruler over his household, to give them their portion of meat in due season?

Why: A steward is one appointed in another's place over his affairs; Christ's parable defines the faithful steward as the one set over his lord's household — the entry's definition nearly verbatim.

**[Humanity] — Humanity / Fiction & Film**

**[J.R.R. Tolkien, The Lord of the Rings, 1954-55]**

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(paraphrase) Denethor, Steward of Gondor, rules the realm in the king's absence — a man appointed in the place of another, exactly as defined. (paraphrase)

Why: Matches the entry's definition nearly word for word: one appointed in the place or stead of another.

## STEWS.

Certain brothels anciently per- mitted In England, suppressed by Henry

VIII. Also, breeding places for tame pheas- ants.

5e apparatus — Carried into the 5th edition (1979).

## STICK.

In the old books. To stop; to hesitate; to accede with reluctance. “The court stuck a little at this exception.” 2 Show. 491.

5e apparatus — Not carried into the 5th edition (1979).

## STICKLER.

(1) An inferior officer who cuts wood within the royal parks of Claren- don. Cowell. (2) An arbitrator. (3) An ob- stinate contender about anything.

5e apparatus — Not carried into the 5th edition (1979).

## STIFLING A PROSECUTION.

Agree- ing, In consideration of receiving a pecuniary or other advantage, to abstain from prose- cuting a person for an offense not giving rise to a civil remedy ; e. Q-, perjury. Sweet

5e apparatus — Carried into the 5th edition (1979).

## STILLBORN.

A stillborn child is one boro dead or in such an early stage of preg- nancy as to be Incapable of living, though not actually dead at the time of birth. Chil- dren born within the first six months after conception are considered by the civil law as incapable of living, and therefore, though

they are apparently born alive, If they do not in fact survive so long as to rebut this pre- sumption of law, they cannot inherit, so as to transmit the property to others. Marsei- lle v. Tbalhimer, 2 Paige (N. Y.) 41, 21 Am. Dec. 66.

5e apparatus — Not carried into the 5th edition (1979).

## STILLICEDIUM.

Lat In the civil law. The drip of water from the eaves of a house. The servitude stillicidil consists in the right to have the water drip from one’s eaves upon the house or ground of another. The term "flumen’’ designated the rain-water collected from the roof, and carried off by the gutters, and there is a similar easement of having It discharged upon the adjoining estate. Mae- keld. Rom. Law, | 317, par. 4.

5e apparatus — Not carried into the 5th edition (1979).

## STINT.

In English law. Limit; a lim- ited number. Used as descriptive of a species of common. See

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Common sans Nombbe.

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## STIPEND.

A salary; settled pay. Man- gam v. Brooklyn, 98 N. Y. 597, 50 Am. Rep. 705.

In English and Scoteh law. A provision made for the support of the clergy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

for the labourer is worthy of his hire.

Why: A stipend is settled pay, salary; Christ states the laborer's right to his hire — the wage principle.

## STIPENDIARY ESTATES.

Estates granted in return for services, generally of a military kind. 1 Steph. Comm. 174.

5e apparatus — Not carried into the 5th edition (1979).

## STIPENDIARY MAGISTRATES.

In

English law. Paid magistrates; appointed in London and some other cities and bor- oughs, and having in general the powers and jurisdiction of Justices of the peace.

5e apparatus — Carried into the 5th edition (1979).

## STLPENDIUM.

Lat In the civil law. The pay of a soldier ; wages ; stipend. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

## STIPES.

Lat In old English law. Stock ; a stock ; a source of descent or title. Communis stipes, the common stock. Fleta. lib. 6, c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## STIPITAL.

Relating to stirpes, roots, or stocks. “Stipltal distribution” of property is distribution per stirpes; that Is. by right of representation.

5e apparatus — Not carried into the 5th edition (1979).

## STIPULATED DAMAGE.

Liquidated damage, (q. v.)

5e apparatus — Carried into the 5th edition (1979).

## STIPULATIO.

Lat. In the Roman law. stipulatio was the verbal contract (verbis obligatio ,) and was the most solemn and formal of all the contracts in that system of jurisprudence. It was entered into by ques- tion and corresponding answer thereto, by the parties, both being present at

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the same time, and usually by such words as “spondesf spondeo,” “promitlist promitto," and the like. Brown.

—Stipulatio Aqniliana. A particular appli- cation of the stipulatio, which waa used to col- lect together into one verbal contract all the li- abilities of every kind and quality of the dcbtor, with a view to their being released or dis- charged by an acoeptilatio, that mode of dis- charge being applicable only to the verbal con- tract. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## STIPULATION.

A material article in an agreement

lit practice. An engagement or under- taking In writing, to do a certain act ; as to try a cause at a certain time. 1 Burrlll, Pr. 389.

The name “stipulation” Is familiarly given to any agreement made by the attorneys en- gaged on opposite sides of a cause, (especially If In writing.) regulating any matter Inci- dental to the proceedings or trial, which falls within their Jurisdiction. Such, for instance, are agreements to extend the time for plead- ing, to take depositions, to waive objections, to admit certain facts, to continue the cause. See Lewis v. Orpheus, 15 Fed. Cas. 492.

In admiralty practice. A recognizance of certain persons (called in the old law “fide iussors") in the nature of bail for the ap- pearance of a defendant 3 Bl. Comm. 108.

5e apparatus — Carried into the 5th edition (1979).

## STIPULATOR.

In the civil law. The party who asked the question in the contract of stipulation ; the other party, or he who an- swered, being called the “promissor.” But, In a more general sense, the term was ap- plied to both the parties. Calvin.

8TIBP8. Lat A root or stock of descent or title. Taking property by right of repre- sentation is called “succession per stirpes,” in opposition to taking in one's own right, or as a principal, which is termed "taking per capita." See Rotmanskey v. Heiss, 86 Md, 633, 39 Atl. 415.

5e apparatus — Carried into the 5th edition (1979).

## STOCK.

In mercantile law. The

goods and wares of a merchant or trades- man, kept for sale and traffic.

In a larger sense. The capital of a mer- chant or other person. Including his mer- chandise, money, and credits, or, in other words, the entire property employed in busi- ness.

In corporation law. The capital or prin- cipal fund of a corporation or Joint-stock company, formed by the contributions of sub- scribers or the sale of shares, and considered as the aggregate of a certain number of shares severally owned by the members or stockholders of the corporation; also the proportional part of the capital which is owned by an individual stockholder; also the incorporeal property which is represent- ed by the holding of a certificate of stock; and in a wider and more remote sense, the right of a shareholder to

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participate in the general management of the company and to share proportionally in its net profits or earnings or in the distribution of assets on dissolution. See Thayer v. Wathen, 17 Tex.

Civ. App. 382, 44 S. W. 906; Burrall v. Bushwick R. Co., 75 N. T. 216; State v. Lewis, 118 Wis. 432, 95 N. W. 888; Heller v. National Marine Bank, 89 Md. 602, 43 Atl. 800, 45 L. R. A. 438, 73 Am. St Rep. 212; Trask v. Maguire, 18 Wall. 402, 21 I* Ed. 938 ; Harrison v. Vines, 46 Tex. 15.

The funded indebtedness of a. state or gov- ernment also, is often represented by stocks, shares of which are held by its creditors at interest

In the law of descent. The term is used, metaphorically, to denote the original pro- genitor of a family, or the ancestor from whom the persons in question are all descend- ed; such descendants being called “branch- es.”

Glauses of eorporate stock. Preferred stock is a separate portion or class of the stock of a corporation, which is accorded, by the charter or by-laws, a preference or priority in respect to dividends, over the re- mainder of the stock of the corporation, which in thnt case is called “common” stock. That is, holders of the preferred stock are entitled to receive dividends at a fixed an- nual rate, out of the net earnings or profits of the corporation, before any distribution of earnings is made to the common stock. If the earnings applicable to the payment of dividends are not more than sufficient for such fixed annual dividend, they will be en- tirely absorbed by the preferred stock. If they are more than sufficient for the purpose, the remainder may be given entirely to the common stock (which is the more usual cus- tom) or such remainder may be distributed pro rata to both classes of the stock, in which case the preferred stock is said to “partici- pate” with the common. The fixed dividend on preferred stock may be “cumulative” or “non-cumnlative.” In the former case. If the stipulated dividend on preferred stock is not earned or paid in any one year, It becomes a charge upon the surplus earnings of the next and succeeding years, and all such accumu- lated and unpaid dividends on the preferred stock must be paid off before the common stock is entitled to receive dividends. In the case of “non-cumulative” preferred stock, its preference for any given year is extin- guished by the failure to earn or pay Its divi- dend in that year. If a corporation has no class of preferred stock, all its stock Is com- mon stock. The word “common” in this con- nection signifies that all the holders of such stock are entitled to an equal pro rata division Of profits or net earnings, if any there be, without any preference or priority among themselves. “Deferred” stock is rare- ly Issued by American corporations, though it is not uncommon in England. This kind of stock is distinguished by the fact that the payment of dividends upon it is expressly postponed until some other class of stock has received a dividend, or until some certain liability or obligation of the corporation is

8TOUTHR1EFF

discharged. If there is a class of "preferred” stock, the common stock may in this sense be said to be “deferred,” and the term Is sometimes used as equivalent to “common” stock.

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But it is not impossible that a cor* poration should have three classes of stock: (1) Preferred, (2) common, and (3) deferred; the latter clpss being postponed, in respect to participation in profits, until both the preferred and the common stock had received dividends at a fixed rate. See Cook, Corp. g 12; State v. Railroad Co., 16 S. C. 528; Scott v. Railroad Co., 03 Md. 475, 49 Atl. 327; Jones v. Railroad Co., 67 N. H. 234, 30 Atl. 614, 68 Am. St. Rep. 650; Lockhart v. Van Alstyne, 31 Mich. 76, 18 Am. Rep. 156 ; Burt v. Rattle, 31 Ohio St. 116; Storrow v. Mfg. Ass'n, 87 Fed. 616, 31 C. C. A. 139.

—Capital stock. See that title.— Certlll- cate of stock. See Certificate. — Guaran- tied stock. Stock of a corporation which is entitled to receive dividends at a fixed annual rate, the payment of which dividends is guar- antied by some outside person or corporation. See Field v. Lamson, etc., Mfg. Co.. 162 Mass. 388, 38 N. E. 1126, 27 L. R. A. 136.— Pnblio stocks. The funded or bonded debt of a gov- ernment or state. — Special stock of a corpora- tion, in Massachusetts, is authorized by statute. It is limited in amount to two-fifths of the actu- al capital. It is subject to redemption by tlie corporation at par after a fixed time. The cor- poration 1b bound to pay a fixed annual divi- dend on it as a debt The holders of it are in no event liable for the debts of the corpora- tion beyond their stock ; and an issue of spe- cial stock makes all the general stockholder*! liable for all debts and contracts of the corpora- tion until the special stock is fully redeemed. American Tube Works v. Boston Mach. Co., 139 Moss. 5, 29 N. E. 63. — Stock association. A joint-stock company, (q. v.) — Stock-broker. One who buys and sells stock as the agent of others. Banta v. Chicago, 172 111. 204, 50 N.

E. 233, 40 L. R. A. 611; Little Rock v. Bar- ton, 33 Ark. 436; Gast v. Buckley (Ky.) 64 8. W. 632.— Stock corporation. A corpora- tion having a capital stock divided into shares, and which is authorized by law to distribute to the holders thereof dividends or shares of the surplus profits of the corporation. Buker v. Steele (<5o. Ct) 43 N. Y. Supp. 350.— Stock dividend. See Dividend.— Stock-exchange. A voluntary association of persons (not usually a corporation) who, for convenience in the transaction of business with each other, have associated themselves to provide a common place for the transaction of their business; an association of stock-brokers. Doe PaSsos, Stock- Brok. 14. The building or room used by an association of stock-brokers for meeting for the transaction of their common business.— Stock- jobber. A dealer in stock ; one who buys and sells stock on his own account on speculation. State v. Debenture Co.. 51 La. Ann. 1874. 26 South. 600.— Stock-note. The term "stock- note" has no technical meaning, and may as well apply to a note given on the sale of stock which the bank hod purchased or taken in the payment of doubtful debts as to a note given on account of an original subscription to stock. Dunlap v. Smith. 12 111. 402.— Water- ed stock. Stock issued by way of increase or addition to the nominal capital stock of the corporation, and passing into the hands of stockholders either by purchase or in the form of a stock dividend, but which does not repre- sent or correspond to any increase iu the actual capital or actual value of the assets of the cor- poration. See Appeal 6f Wiitbank, 64 I'a. 260, 3 Am. Rep. 585.

5e apparatus — Carried into the 5th edition (1979).

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## STOCKHOLDER.

A person- who owns shares of- stock in a corporation or joint- stock company. See Mills v. Stewart, 41 N.

X. 386; Ross v. Knapp, etc., Co., 77 111. App. 424 ; Corwlth v. Culver, 69 111. 502 ; Hirsh- feld v. Bopp, 145 N. Y. 84, 39 N. E. 817 ; State v. Hood, 15 Rich. Law (S. C.) 186.

The owners of shares In a corporation which has a capital stock are called “stock- holders.” If a corporation has no capital stock, the corporators and their successors are called “members." Civ. Code Dak. f 392.

5e apparatus — Carried into the 5th edition (1979).

## STOCKS.

A machine consisting of two pieces of timber, arranged to be fastened to- gether, and holding fast the legs of a person placed in it. This was an ancient method of punishment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jeremiah 20:2, KJV]**

Then Pashur smote Jeremiah the prophet, and put him in the stocks that were in the high gate of Benjamin, which was by the house of the LORD.

Why: The stocks are the timber punishment device; the verse attests the device in actual penal use. Illustrative rather than doctrinal — kept because it genuinely shows the penal function.

## STOP ORDER.

The name of an order grantable In English chancery practice, to prevent drawing out a fund in court to the prejudice of an assignee or lienholder.

5e apparatus — Carried into the 5th edition (1979).

## STOPPAGE.

In the civil law. Compen- sation or set-off.

5e apparatus — Carried into the 5th edition (1979).

## STOPPAGE IN TRANSITU.

The act by

which the unpaid vendor of goods stops their progress and resumes possession of them, while they are in course of trauslt from him to the purchaser, and not yet actually deliv- ered to the latter.

The right of stoppage *» transitu is that which the vendor has, when he sells goods on credit to another, of resuming the possession of the goods while they are in the possession of a car- rier or middle-man, in the transit to the con- signee or vendee, and before they arrive into his actual possession, or the destination he has ap- pointed for them on his becoming bankrupt and insolvent. 2 Kent, Comm. 702.

Stoppage in transitu is the right which arises to an unpaid vendor to resume the possession,

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with which he has parted, of goods sold npon credit, before they come into the possession of a buyer who has become insolvent, bankrupt, or gicuniarily embarrassed. Inslee v. Lane, 67 N.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-705 — seller's stoppage of delivery in transit]**

The common-law right the entry defines survives in modern uniform law: the seller may stop delivery of goods in a carrier's possession upon discovering the buyer's insolvency.

Why: The body states the 1910 common-law doctrine completely but gives no modern locus; the footnote anchors the doctrine's survival in the current uniform statute — genuine added light about where the rule lives today, no…

## STORE.

Storing is tbe keeping merchan- dise for safe custody, to be delivered in the same condition as -when received, where the safe-keeping is the principal object of depos- it, and not the consumption or sale. O'Niel v. Buffalo F. Ins. Co.. 3 N. Y. 122; Hynds v. Schenectady County Mut Ins. Co., 16 Barh. (N. Y.) 119.

—Public store. A government warehouse, maintained for certain administrative purposes, such as tbe keeping of military supplies, the storing of imported goods under bonds to pay duty, etc.— Stores. The supplies of different articles provided for the subsistence and accom- modation of a ship's crew and passengers.

5e apparatus — Not carried into the 5th edition (1979).

## STO UTHR1EFF.

In Scotch law. For- merly this word Included every species of • theft accompanied with violence to the per- son, but of late years it has become the vos signata for forcible and masterful depreda- tion within or near the dwelling-house ; while robbery has beeu more particularly applied to

8TOWAGE

8TREPITU8

violent depredation on the highway, or ac- companied by house-breaking. Alls. Prin. Scotch Law, 227.

5e apparatus — Not carried into the 5th edition (1979).

## STOWAGE.

In maritime law. The stor- ing, packing, or arranging of the cargo in a ship, in such a manner as to protect the goods from friction, bruising, or damage from leakage.

Money paid for a room where goods are laid ; housage. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## STOWE.

In old English law. A valley. Co. Litt. 46.

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## STRADDLE.

In stock-brokers' parlance the term means the double privilege 'Of a "put” and a "call," and secures to the holder the right to demand of the seller at a certain price within a certain time a certain number of shares of specified stock, or to require him to take, at the same price within the same time, the same shares of stock. Harris v. Tumbridge, 83 N. X. 95, 38 Am. Rep. 398.

5e apparatus — Carried into the 5th edition (1979).

## STRAMINEUS HOMO.

L. Lat_ A man of straw, one of no substance, put forward as bail or surety.

STRAND, A shore or bank of the sea or a river. Doane v. Wlllcutt, 5 Gray (Mass.) 335, 66 Am. Dec. 369 ; Bell v. Hayes, 60 App. Dlv. 382, 69 N. X. Supp. 898; Stillman v. Bur- feind, 21 App. Dlv. 13, 47 N. X. Supp. 280.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Victor Fleming, The Wizard of Oz, 1939]**

(paraphrase) The Scarecrow — a man of straw who fears he has no brains — put forward, and found to have substance after all. (paraphrase)

Why: Literally a man of straw of no apparent substance, put forward as the entry describes — here as companion rather than surety.

## STRANDING.

In maritime law. The drifting, driving, or running aground of a ship on a shore or strand. Accidental strand- ing takes place where the ship is driven on shore by the winds and waves. Voluntary stranding takes place where the ship is run on shore either to preserve her from a worse fate or for some fraudulent purpose. Marsh. Ins. bk. 1, c. 12, | 1. See Barrow v. Bell, 4 Barn. A C. 730; Strong v. Sun Mut. Ins. Co., 31 N. X. 100, 88 Am. Dec. 242 ; Lake v. Columbus Ins. Co., 13 Ohio, 55, 42 Am. Dec. 188; London Assur. Co. v. Companion de Mongens, 167 U. S. 149, 17 Sup. Ct. 785, 42 h. Ed. 113.

5e apparatus — Carried into the 5th edition (1979).

## STRANGER IN BLOOD.

Any person not within the consideration of natural love and affection arising from relationship.

5e apparatus — Carried into the 5th edition (1979).

## STRANGERS.

By this term is Intended third persons generally. Thus the persons bound by a fine are parties, privies, and strangers; the parties are either the cogni- sore or cognizees ; the privies are such as are in any way related to those who levy the fine, and claim under them by any right of blood, or other right of representation ; the stran- gers are all other persons in the world, except only the parties and privies. In its general legal signification the term is

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opposed to the word “privy.” Those who are in no way parties to a covenant, nor bound by it, are

also said to be strangers to the covenant Brown. See Robbins v. Chicago, 4 Wall. 672, 18 L. Ed. 427 ; O'Donnell v. McIntyre, 118 N. X. 106, 23 N. E. 450; Bennett v. Chandler, 199 111. 97, 64 N. E. 1052 ; Kirk v. Morris, 40 Ala. 228; U. S. v. Ilenderlong (C. C.) 102 Fed. 2.

5e apparatus — Carried into the 5th edition (1979).

## STRATAGEM.

A deception either by words or actions, in times of war, in order to obtain an advantage over an enemy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Joshua 8:2, KJV]**

lay thee an ambush for the city behind it.

Why: A stratagem is deception in war to gain advantage; the verse is a divinely ordered ambush — stratagem commanded.

**[Humanity] — Humanity / Fiction & Film**

**[Sun Tzu, The Art of War, c. 5th c. BCE]**

All warfare is based on deception.

Why: The classical maxim stating the entry's definition verbatim in substance — deception by words or actions in war to gain advantage over an enemy (Giles translation).

## STRATOCRACY.

A military govern- ment; government by military chiefs of an army.

5e apparatus — Not carried into the 5th edition (1979).

## STRATOR.

In old English law. A sur- veyor of the highways.

5e apparatus — Not carried into the 5th edition (1979).

## STRAW BAIL.

See Bail.

, STRAY. See Estbax.

5e apparatus — Carried into the 5th edition (1979).

## STREAM.

A current of water ; a body of flowing water. The word, in its ordinary sjknse, includes rivers. But Callls defines a stream "a current of waters running over the level at random, and not kept in with banks or walls." Call. Sew. [83,] 133. See Munson v. Hungerford, 6 Barb. (N. X.) 270 ; French v. Carhart, 1 N. X. 107 ; Miller v; Black Rock Springs Imp. Co., 99 Va. 747, 40

S. E. 27, 86 Am. St. Rep. 924 ; Armfield v. State, 27 Ind. App. 48S, 61 N. E. 093 ; Trus- tees of Schools v. Schroll, 120 111. 509, 12 N.

E. 243, 60 Am. Hep. 575.

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— Private stream. A non-navigable creek or water-course, the bed or channel of which is exclusively owned by a private individual. See Adams v. Pease, 2 Conn. 484; Reynolds v. Com., 93 Pa. 461.

5e apparatus — Carried into the 5th edition (1979).

## STREAMING FOR TIN.

The process of working tin in Cornwall and Devon. The right to stream must not be exercised so as to Interfere with the rights of other private individuals; e. g., either by withdrawing or by polluting or choking up the water-courses or waters of others ; and the statutes 23 Hen.

VIII. c. 8, and 27 Hen. VIII. c. 23, impose a penalty of £20 for the offense. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## STREET.

An urban way or thorough, fare; a road or public way In a city, town, or village, generally paved, and lined or in- tended to be lined by houses on each side. See D. S. v. Bain, 24 Fed. Cas. 943 ; Brace v. New Xork Cent. R. Co., 27 N. X. 271 ; In re Woolsey, 95 N. X. 138 ; Debolt v. Carter, 31 Ind. 367; Theobold v. Railway Co., 66 Miss. 279, 6 South. 230, 4 L. R. A. 735, 14 Am. St Rep. 564.

5e apparatus — Carried into the 5th edition (1979).

## STREIGHTEN.

In the old books. To narrow or restrict. “l*he habendum should not streighten the devise.” 1 Leon. 58.

5e apparatus — Not carried into the 5th edition (1979).

## STREFITTJ8.

In old records. Estrepe- ment or strip ; a species of waste or destruc- tion of property. Spelman.

6TREPITU8 JUD1CIALI8

6TULTIL0QUIUM [TEXT INCOMPLETE — scan limitation]

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## STREP ITUS JUDICIALI8.

Turbulent conduct lu a court of justice. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## STRICT.

As to strict “Construction,” “Foreclosure,” and “Settlement,” see those titles.

8TRICTI JURIS. Lat. Of strict right or law ; according to strict law. “A license is a thing atricti juris; a privilege which a man does not possess by his own right, but It is conceded to him as an indulgence, and therefore it is to be strictly observed.” 2 Rob. Adm. 117.

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5e apparatus — Carried into the 5th edition (1979).

## STRICTI8SIMI JURIS.

Lat. Of the strictest right or law. “Licenses being mat- ter of special indulgence, the application of them was formerly strictissimi juris.” 1 Edw. Adm. 328.

5e apparatus — Not carried into the 5th edition (1979).

## STRICTO JURE.

Lat In strict law. 1 Kent, Comm. 65.

5e apparatus — Not carried into the 5th edition (1979).

## STRICTUM JUS.

Lat Strict right or law; the rigor of the law as distinguished from equity.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 3:6, KJV]**

for the letter killeth, but the spirit giveth life.

Why: Strictum jus is the rigor of the law as distinguished from equity; the letter/spirit contrast is its theological twin — rigor kills, the spirit gives life.

## STRIKE.

The act of a body of workmen employed by the same master, in stopping work all together at a prearranged time, and refusing to continue until higher wages, or shorter time, or some other concession is grauted to them by the employer. See Farm- ers’ L. & T. Co. v. Northern Pac. R. Co. (C. C.) 60 Fed. 819; Arthur v. Oakes, 03 Fed. 327, 11 C. C. A. 209, 25 I* R. A. 414 ; Rail- road Co. v. Bowns, 58 N. Z. 582; Longshore Printing Co. v. Howell, 26 Or. 527, 38 Pac. 547, 28 L. R. A. 464, 40 Am. St Rep. 040.

In mining law. The strike of a vein or lode is its extension in the horizontal plane, or its lengthwise trend or course with ref- erence to the points of the compass; distin- guished from its “dip,” which is Us slope or slant, away from the perpendicular, as it goes downward into the earth, or the angle of its deviation from the vertical plane.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Martin Ritt, Norma Rae, 1979]**

(paraphrase) Norma Rae holds her UNION sign aloft above the mill floor as the machines fall silent one by one. (paraphrase)

Why: Dramatizes the entry's definition exactly: workmen stopping work together until higher wages or other concessions are granted.

## STRIKE OFF.

In common parlance, and in the language of the auction-room, prop- erty is understood to be “struck off” or “knocked down,” when the auctioneer, by the fall of his hammer, or by any other audible or visible announcement, aiguilles to the bidder that he is entitled to the

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property on paying the amount of his bid, according to the terms of the sale. Sherwood v. Reade, 7 Hill (N. Z.) 439.

In practice. A court is said to "strike off” a case when It directs the removal of the case from the record or docket, as being one over which it has no Jurisdiction and no power to hear and determine it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## STRIKING A DOCKET.

In English practice. The first step In the proceedings in

bankruptcy, which consists in making affi- davit of the debt and giving a bond to fol- low up the proceedings with effect. 2 Steph. Comm. 199. When the affidavit and bond are delivered at the bankrupt office, an entry Is made in what is called the “docket-book,” upon which the petitioning creditor Is said to have struck a docket. Eden, Bankr. 51, 52.

5e apparatus — Not carried into the 5th edition (1979).

## STRIKING A JURY.

The selecting or nominating a jury of twelve men out of the whole number returned as jurors on the panel. It is especially used of the selection of a special jury, where a panel of forty- eight is prepared by the proper officer, and the parties, in turn, strike off a certain num- ber of names, until the list is reduced to twelve. A jury thus chosen is called a “struck Jury.”

5e apparatus — Carried into the 5th edition (1979).

## STRIKING OFF THE ROLL.

The dis- barring of an attorney or solicitor.

5e apparatus — Carried into the 5th edition (1979).

## STRIP.

The act of spoiling or unlawful- ly taking away anything from the land, by the tenant for life or years, or by one holding an estate in the land less than the entire fee. Pub. St Mass. 1882, p. 1295.

5e apparatus — Carried into the 5th edition (1979).

## STRONG HAND.

The words "with strong hand” imply a degree of criminal force, whereas the words vi et armis ("with force and arms”) are mere formal words in the action of trespass, and the plaintiff is not bound to prove any force. The statutes re- lating to forcible entries use the words “with a strong hand” as describing that degree or force which makes an entry or detainer of lands criminal. Brown.

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## STRUCK.

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In pleading. A word essen- tial in an indictment for murder, when the death arises from any wounding, beating, or bruising. 1 Bulsh 184; 5 Coke, 122; 3 alod. 202.

5e apparatus — Carried into the 5th edition (1979).

## STRUCK JURY.

See Striking a Jtjbt.

5e apparatus — Carried into the 5th edition (1979).

## STRUMPET.

A whore, harlot, or cour- tesan. This word was anciently used for an addition. It occurs as an addition to the name of a woman in a return made by a jury in the sixth year of Henry V. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## STUFF GOWN.

The professional robe worn by barristers of the outer bar; viz., those who have not been admitted to the rank at king's counsel. Brown.

5e apparatus — Carried into the 5th edition (1979).

## STULTIFY.

To make one out mentally incapacitated for the performance of an act v

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## STULTILOQUIUM.

Lat In old English law. Vicious pleading, for which a fine was imposed by King John, supposed to be the origin of the fines for beau-pleader. Crabb. Eng. Law, 135.

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5e apparatus — Not carried into the 5th edition (1979).

## STUMP AGE.

The sum agreed to be paid to au owner of land for trees standing (or lying) upon bis land, the purchaser being permitted to enter upon the land and to cut down and remove the trees ; in other words, it Is the price paid for a license to cut Blood v. Drummond, 67 Me. 478.

8TUPRUM. Lat In the civil law. Un- lawful intercourse with a woman. Distin- guished from adultery as being, committed with a virgin or widow. Dig. 48, 5, 6.

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## STURGEON.

A royal fish which, when •either thrown ashore or caught near the coast, is the property of the sovereign. 2 Steph. Comm. 19n, 540.

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STTIiE. As a verb, to call, name, or en- title one ; as a noun, the title or appellation of a person.

5e apparatus — Not carried into the 5th edition (1979).

## SUA 8PONTE.

Lat Of his or its own will or motion ; voluntarily; without prompt- ing or suggestion.

5e apparatus — Not carried into the 5th edition (1979).

## SUABLE.

That which may be sued.

5e apparatus — Not carried into the 5th edition (1979).

## SUAPTE NATURA.

Lat In its own

nature. Buapte natvra sterilis, barren in its own nature and quality; intrinsically bar- ren. 5 Maule A 8. 170.

5e apparatus — Not carried into the 5th edition (1979).

## SUB.

Lat Under; upon.

— Sub colors juris. Under color of right; under a show or appearance of right or right- ful power.— Sub conditions. Upon condition. The proper words to express a condition in a conveyance, and to create an estate upon con- dition. Graves v. Deteriing, 120 N. Y. 447, 24 N. El 656.— Snb disjunctions. In the al- ternative. Fleta, lib. 2, c. 60, { 21.— Snb Ju- dies. Under or before a judge or court; un- der judicial consideration : undetermined. 12 East, 409.— Snb modo. Under a qualification ; subject to a restriction or condition.— Sub nomine. Under the name : in the name of ; under the title of.— Snb pede sigilli. Under the foot of the seal ; under seal. 1 Strange, 521.— Snb potestate. Under, or subject to, the power of another; used of a wife, child, slave, or other person not sui juris. — Sub salvo et seouro condnctn. Under safe and secure conduct. 1 Strange, 430. Words in the old writ of habeas corpus.— Snb silentio. Under silence; without any notice being taken. Pass- ing a thing sub silentio may be evidence of con- sent.—Snb spe reconciliationis. Under the hope of reconcilement. 2 Kent, Comm. 127. — Sub sno perleulo. At his own risk. Fleta, lib. 2, c. 5, 8 5.

5e apparatus — Not carried into the 5th edition (1979).

## SUB-BAIXIVUS.

In old English law. An under-bailiff ; a sheriff's deputy. Fleta, lib. 2, c. 68. 8 2.

5e apparatus — Not carried into the 5th edition (1979).

## SUB-BOIS.

Coppice-wood. 2 Inst. 642.

5e apparatus — Not carried into the 5th edition (1979).

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## SUBAGENT.

An under-agent; a substi- tuted agent; an agent appointed by one who Is himself an agent. 2 Kent, Comm. 633.

5e apparatus — Carried into the 5th edition (1979).

## SUBALTERN.

An inferior or subordi- nate officer. An officer who exercises his authority under the superintendence and control of a superior.

5e apparatus — Not carried into the 5th edition (1979).

## SUBCONTRACT.

See Co nth act.

5e apparatus — Carried into the 5th edition (1979).

## SUBDITUS.

Lat In old English law. A vassal; a dependent; any one under the power of another. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## SUBDIVIDE.

To divide a part into smaller parts ; to separate into smaller divi- sions. As, where an estate is to be taken by some of the heirs per stirpes, it is divided and subdivided according to the number of takers in the nearest degree and those in the more remote degree respectively.

5e apparatus — Carried into the 5th edition (1979).

## SUBDUCT.

In English probate practice, to subduct a caveat is to withdraw it.

8UBHASTARE. Lat. In the civU law. To sell at public auction, which was done sub hast a, under a spear ; to put or sell under the spear. Calvin.

8UBHA8TATIO. Lat In the civil law. A sale by public auction, which was done under a spear, fixed up at the place of sale as a public sign of it Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SUBINFEUDATION.

The system which the feudal tenants introduced of granting smaller estates out of those which they held of their lord, to be held of themselves asj inferior lords. As this system was proceed- ing downward ad infinitum, and depriving the lords of their feudal profits, it was en- tirely suppressed by the statute Quia Emp- tores, 18 Edw. I. c. 1., and Instead of it al- ienation in the modern sense was introduced, so that thenceforth the alienee held of the same chief lord and by the same services that his alienor before him held. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SUBJECT.

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In logic. That concerning which the affirmation in a proposition Is made; the first word in a proposition.

An individual matter considered as the ob- ject of legislation. The constitutions of sev- eral of the states require that e'very act of the legislature shall relate to but one subject, which shall be expressed in the title of the statute. See Ex parte Thomas, 113 Ala. 1, 21 South. 369 ; In re Mayer, 50 N. Y. 504 ; State v. County Treasurer, 4 S. C. 023 ; John- son v. Ilarrlsou, 47 Minn. 577, 00 N. W. 923, 28 Am. St. Rep. 382.

In constitutional law. One that owes al- legiance to a sovereign and is governed by his laws. The natives of Great Britain are sub- jects of the British government. Men In free governments are subjects as well ns citizens; as citizens they enjoy rights and franchises; as subjects they are bound to obey the laws. Webster. The term is little used, in this sense, in countries enjoying a republican form of government See The Plzarro, 2 Wheat. 245, 4 Ll Ed. 220 ; U. S. v. Wong Kim Ark, 169 U. S. 649, 18 Sup. Ct. 406, 42 L. Ed. S90.

In Scotch law. The thing which is the object of an agreement

8UBROGATION

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## SUBJECTION.

The obligation of one or more persons to act at the discretion or ac- cording to the Judgment and will of others.

5e apparatus — Carried into the 5th edition (1979).

## SUBJECT-MATTER.

The thing In con- troversy, or the matter spoken or written about.

Sublata. eania tollitnr effectus. Co.

Litt. 303. The cause being removed the ef- fect ceases.

Sublata veneratlone magiatratnum, rcspubUca rult. When respect for magis- trates is taken away, the commonwealth falls. Jenk. Cent. p. 43, case 81.

Sublato fundamento oadit opus. Jenk. Cent. 106. The foundation being removed, the superstructure falls.

Sublato prlncipali, tollitnr adjunotum.

When the principal Is taken away, the Inci- dent Is taken also. Co. Litt 3S9a.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Peter 2:13, KJV]**

Submit yourselves to every ordinance of man for the Lord's sake: whether it be to the king, as supreme;

Why: Subjection is the obligation to act at another's discretion or judgment; the verse commands subjection to governing ordinance.

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## SUBLEASE.

A lease by a tenant to an- other person of a part of the premises held by him; an under-lease.

5e apparatus — Carried into the 5th edition (1979).

## SUBMISSION.

A yielding to authority. A citizen is bound to submit to the laws; a child to bis parents.

In practice. A submission Is a covenant by which persons who have a lawsuit or dif- ference with one another name arbitrators to decide the matter, and bind themselves recip- rocally to perform what shall be arbitrated. Civ. Code La. art.' 3099; Garr v. Gomez, 9 Wend. <N. T.) 661; District of Columbia v. Bailey, 171 U. S. 161, 18 Sup. Ct. 868, 43 L. Ed. 118; Chorpenning v. U. S., 11 Ct Cl. 628; Shed v. Railroad Co., 67 Mo. 687.

In maritime law. Submission on the part of the vanquished, and complete possession on the part of the victor, transfer property as between belligerents. The Alexander, 1 Gall. 532, Fed. Cas. No. 164.

—Submission bond. The bond by which the parties agree to submit tbeir matters to arbitra- tion, and by which they bind themselves to abide by the award of the arbitrator, is com- monly called a “submission bond.” Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 4:7, KJV]**

Submit yourselves therefore to God. Resist the devil, and he will flee from you.

Why: Submission is yielding to authority; the verse states submission as the yielded posture itself.

## SUBMIT.

To propound; as an advocate submits a proposition for the approval of the court.

Applied to a controversy, it means to place it before a tribunal for determination.

5e apparatus — Carried into the 5th edition (1979).

## SUBMORTGAGE.

When a person who holds a mortgage as security for a loan which he has made, procures a loan to himself from a third person, and pledges his mortgage as security, he effects what is called a “submort- gage.”

5e apparatus — Carried into the 5th edition (1979).

## SUBNERVARE.

To ham-string by cut- ting the sinews of the legs and thighs.

It was an old custom meretrices et impudi - cos mulieres subnervare. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SUBNOTATIONS.

In the civil law. The answers of the prince to questions which bad been put to him

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respecting some obscure or doubtful point of law.

5e apparatus — Not carried into the 5th edition (1979).

## SUBORN.

In criminal law. To procuv-e another to commit perjury. Steph. Crim. Law', 74.

5e apparatus — Carried into the 5th edition (1979).

## SUBORNATION OF PERJURY.

In

Criminal law. The offense of procuring an- other to take such a false oath as would con- stitute perjury in the principal. See Stone v. State, 118 Ga. 705, 45 S. E. 630, 98 Am. St Rep. 145; State v. Fahey, 3 Pennewill (Del.) 594, 54 AU. 690; State v. Geer, 46 Kan. 629, 26 Pac. 1027.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:18-19, KJV]**

And the judges shall make diligent inquisition: and, behold, if the witness be a false witness, and hath testified falsely against his brother; Then shall ye do unto him, as he had thought to have done unto his brother: so shalt thou put the evil away from among you.

Why: Subornation of perjury procures another's false oath; the verse is the false-witness law with its talionic sanction — the underlying wrong subornation procures. Spoken by Moses, not first-person deity speech: flag off.

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) The Ewells' false testimony sends Tom Robinson to his conviction in the trial at the story's center. (paraphrase)

Why: The canonical fictional perjury procured for a prosecution — procuring another to take a false oath, as defined.

## SUBORNER.

One who suborns or pro- cures another to commit any crime, particu- larly to commit perjury.

5e apparatus — Carried into the 5th edition (1979).

## SUBPOENA.

The process by which the attendance of a witness is required is called a “subpoena.” It is a writ or order directed to a person, and requiring his attendance at a particular time and place to testify as a wit- ness. It may also require him to bring with him any books, documents, or other things under his control which he is bound by law to produce in evidence. Code Civ. Proc. CaL i 1985. See Dishaw v. Wadleigh, 15 App. Div. 205, 44 N. Y. Supp. 207; Alexander ▼. Harrison, 2 Ind. App. 47, 28 N. E. 119; Bleecker v. Carroll, 2 Abb. Prac. (N. Y.) 82.

In chancery practice. A mandatory writ or process directed to and requiring one or more persons to appear at a time to come and answer the matters charged against him or them.

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—Subpoena ad teetiflcandnm. Subpoena to testify. The common snbpoena requiring the at- tendance of a witness on a trial, inquisition, or examination. 3 Bl. Comm. 369 ; In re Strauss, 30 App. Div. 610, 52 N. Y. Supp. 392.— Snb- poena duces tecum. A snbpoena used, not only for the purpose of compelling witnesses to attend in court, but also requiring them to bring tcith them books or documents which may be in their possession, and which may tend to elucidate the subject-matter of the trial. Brown ; 3 Bl. Comm. 382.

8UBREPTIO. Lat. In the civil law. Obtaining gifts of escheat, etc., from the king by concealing the truth. Bell ; Calvin.

5e apparatus — Carried into the 5th edition (1979).

## SUBREPTION.

In French law. The fraud committed to obtain a pardon, title, or grant, by alleging facts contrary to truth.

5e apparatus — Carried into the 5th edition (1979).

## SUBROGATION.

The substitution of one thing for another, or of one person Into the place of another with respect to rights, claims, or securities.

Subrogation denotes the putting a third person who has paid a debt in the place of the creditor to whom he has paid It, so as that he may exercise against the debtor all

the rights which the creditor, if unpaid, might have done. Brown.

The equity by which a person who is second- arily liaule for a debt, and has paid it, is put in the place of the creditor, so as to entitle him to make use of all the securities and remedies possessed by the creditor, in order to enforce the right of exoneration as against the principal debtor, or of contribution against others who are liable in the same rank as himself. Bisp. Eq. | 335. And see Fuller v. Davis, 184 111. 505, 56 N. El 791 : Chaffe v. Oliver, 39 Ark. 542; CockVum v. West, 122 Ind. 372, 23 N.

E. 140; Mansfield v. New York, 165 N. Y. 208, 58 N. B. 889: Knighton v. Curry, 02 Ala. 404; Gatewood v. Gatewood, 75 Va. 411.

Subrogation Is of two kinds, either conven- tional or legal; the former being where the subrogation is express, by the acts of the creditor and the third person; the latter be- ing (as In the case of sureties) where the sub- rogation is effected or implied by the opera- tion of the law. See Gordon v. Stewart, 4 Neb. (Unof.) 852, 96 N. W. 628; Connecticut Mut L. Ins. Co. v. Cornwell, 72 Hun, 199, 25 N. Y. Supp. 348; Seeley v. Bacon (N. J. Ch.) 34 Atl. 140; Home Sav. Bank v. Bier- stadt, 168 111. 618, 48 N. E. 161, 61 Am. St Rep. 146.

5e apparatus — Carried into the 5th edition (1979).

## SUBROGEE.

A person who is subrogat- ed; one who succeeds to the rights of another by subrogation.

5e apparatus — Not carried into the 5th edition (1979).

## SUBSCRIBE.

In the law of contracts. To write under; to write the name under ; to write the name at the bottom or end of a writing. Wild Cat Branch v. Ball, 45 Ind. 213; Davis v. Shields, 26 Wend. (N. Y.) 341.

5e apparatus — Carried into the 5th edition (1979).

## SUBSCRIBER.

One who writes his name under a written instrument; one who affixes bis signature to any document, wheth- er for the purpose of authenticating or attest- ing it, of adopting its terms as his own ex- pressions, or of binding himself by an engage- ment which it contains.

5e apparatus — Carried into the 5th edition (1979).

## SUBSCRIBING WITNESS.

He who

witnesses or attests the signature of a party to an instrument, and in testimony thereof subscribes bis own name to the document

A subscribing witness is one who sees a writing executed, or hears it acknowledged, and at the request of the party thereupon signs his name as a witness. Code Civ. Proc. Cal. i 1935.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:17, KJV]**

It is also written in your law, that the testimony of two men is true.

Why: A subscribing witness attests a signature in testimony thereof; Christ invokes the two-witness rule — the attestation principle behind requiring witnesses.

## SUBSCRIPTIO.

Lat In the civil law. A writing under, or under-writing; a writ- ing of the name under or at the bottom of an Instrument by way of attestation or ratifica- tion; subscription.

That kind of Imperial constitution- which was granted in answer to the prayer of a pe- titioner who was present. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SUBSCRIPTION.

The act of writing one’s name under a written Instrument : the affixing one'B signature to any document.

whether for the purpose of authenticating or attesting it, of adopting its terms as one’s own expressions, or of binding one’s self by an engagement which it contains.

Subscription is the act of the hand, while attestation is the act of the senses. To sub- scribe a paper published as a will is only to write on the same paper the name of the wit- ness; to attest a will is to know that it was published as such, and to certify the facts re- quired to constitute an actual and legal publica- tion. In re Downie’s Will, 42 Wis. 66, 76.

A written contract by which one engages to contribute a sum of money for a desig- nated purpose, either gratuitously, as in the case of subscribing to a charity, or in consid- eration

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of an equivalent to be rendered, as a subscription to a periodical, a forthcoming book, a series of entertainments, or the like.

— Subscription list. A list of subscribers to some agreement with each other or a third person.

SUBSEXiUA. Lat In Roman law. Lower seats or benches, occupied by the in- dices and by inferior magistrates when they sat in judgment as distinguished from the tribunal of the praetor. Calvin.

Sabaeqaeas matrimoniam tollit pecea- tum prmcedens. A subsequent marriage [of the parties] removes a previous fault <• ’ e., previous illicit intercourse, and legitimates the offspring. A rule of Roman law.

5e apparatus — Carried into the 5th edition (1979).

## SUBSEQUENT CONDITION.

See Con- dition.

5e apparatus — Carried into the 5th edition (1979).

## SUBSIDY.

Ia English law. An aid, tax, or tribute granted by parliament to the king for the urgent occasions of the king- dom, to be levied on every subject of ability, according to the value of his lands or goods. Jacob.

Ia American law. A grant of money made by government in aid of the promoters of any enterprise, work, or Improvement in which the government desires to participate, or which is considered a proper subject for state aid, because likely to be of benefit to the public.

Ia international law. The assistance given In money by one nation to another to enable It the better to carry on a war, when such nation does not Join directly in the war. Vattel, bk. 3, | 82.

5e apparatus — Carried into the 5th edition (1979).

## SUBSTANCE.

Essence; the material or essential part of a thing, as distinguished from "form.” See State v. Bnrgdoerfer, 107 Mo. 1, 17 S. W. 646, 14 L. R. A. 846; Hugo v. Miller, 50 Minn. 105, 52 N. W. 381 : Pierson v. Insurance Co., 7 Iloust. (Del.) 307, 31 Atl. 966.

5e apparatus — Carried into the 5th edition (1979).

## SUBSTANTIAE DAMAGES.

A sum. as- sessed by way of damages, which is worth having; opposed to nominal damages, which

are assessed to satisfy a bare legal right. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SUBSTANTIVE LAW.

That part of the law which the courts are established to ad- minister, as opposed to the

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rules according to which the substantive law Itself is adminis- tered. That part of the law which creates, defines, and regulates rights, as opposed to adjective or remedial law, which prescribes the method of enforcing rights or obtaining redress for their invasion.

5e apparatus — Carried into the 5th edition (1979).

## SUBSTITUTE.

One appointed in the place or stead of another, to transact business for him ; a proxy.

A person hired by one who has been draft- ed into the military service of the country, to go to the front and serve in the army in his stead.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Mark Twain, The Prince and the Pauper, 1881]**

(paraphrase) Edward Tudor and Tom Canty trade places, each living the other's life. (paraphrase)

Why: The archetypal substitute narrative — one appointed in the place or stead of another.

## SUBSTITUTED EXECUTOR.

One ap- pointed to act in the place of another execu- tor upon the happening of a certain event; «. g., if the latter should refuse the office.

5e apparatus — Carried into the 5th edition (1979).

## SUBSTITUTED SERVICE.

la English practice. Service of process made under authorization of the court upon some other person, when the person who should be serv- ed cannot be found or cannot be reached.

In American law. Service of process up- on a defendant in any manner, authorized by statute, other than personal service wltbln the jurisdiction; as by publication, by mail- ing a copy to his last known address, or by personal service in another state.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950)]**

The mechanics the entry describes — service by publication or mailing when personal service cannot be had — must satisfy due process: notice 'reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action.'

Why: The body describes how substituted service is made but omits the constitutional standard governing it; Mullane's 'reasonably calculated' test is the controlling precedent on notice by publication — genuine illuminatio…

## SUBSTITUTES.

In Scotch law. The person first called or nominated in a tailzie <entailment of an estate upon a number of heirs in succession) is called the “institute” or ‘‘heir-institute;" the rest are called “sub- stitutes.”

5e apparatus — Not carried into the 5th edition (1979).

## SUBSTITUTIO HJEREDIS.

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Lat. In Roman law, it was competent for a testator after instituting a lurres (called the “lucres institutus”) to substitute another (called the “ lucres substitutus") in his place in a certain event. If the event upon which the substitu- tion was to take effect was the refusal of the instituted heir to accept the inheritance at all, then the substitution was called “t>ul- garis,” (or common;) but if the event was the death of the Infant ( pupillus ) after ac- ceptance, and before attaining his majority, (of fourteen years if a male, and of twelve years if a female.) then the substitution was called “ papillaris (or for minors.) Brown.

SUBSTITUTION . In the civil law.

The putting one person in place of another; particularly, the act of a testator in naming a second devisee or legatee who is to take the bequest either on failure of the original devisee or legatee or after him.

In Scotch law. The enumeration or des- ignation of the heirs in a settlement of prop- erty. Substitutes in an entail are those heirs who are appointed in succession on failure of others. ARY. Where a will contains a gift of prop- erty to. a class of persons, with a clause pro- viding that on the death of a member of the class before the period of distribution his share is to go to his issue, (If any,) so as to substitute them for him, the gift to the issue is said to be substitutional or substitutionary: A bequest to such of the children of A. as shall be living at the testator's death, with a direction that the issue of such as shall have died shall take the shares which their parents would have taken, if living at the testator's death, is an example. Sweet. See Aeken v. Osborn, 45 N. J. Eq. 377, 17 Atl. 7G7 ; In re De Laveaga’s Estate, 119 Cal. 651, 51 Pac. 1074.

5e apparatus — Not carried into the 5th edition (1979).

## SUB8TRACTION.

In French law. The fraudulent appropriation of any property, but particularly of the goods of a decedent’s estate.

5e apparatus — Not carried into the 5th edition (1979).

## SUBTENANT.

An under-tenant; one who leases all or a part of the rented premises from the original lessee for a term less than that held by the latter. Forrest v. DurnelL 86 Tex. 647, 26 S. W. 481.

5e apparatus — Not carried into the 5th edition (1979).

## SUBTRACTION.

The offense of with- holding or withdrawing from another man what by law he is entitled to. There are various descriptions of this offense, of which the principal are as follows: (1) Subtraction of suit and services, which is a species of in- jury affecting a man’s real property, and con- sists of a withdrawal of (or a neglect to per- form or pay) the fealty, suit of court, rent, or services reserved by the lessor of the land. <2) Subtraction of tithes is the withholding from the parson or vicar the tithes to which he is entitled, and this is cognizable in the ecclesiastical courts. (3) Subtraction of con- jugal rights is tlie withdrawing or

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withhold- ing by a husband or wife of those rights and privileges which the law allows to either party. (4) Subtraction of legacies is the withholding or detaining of legacies by an executor. (5) Subtraction of church rates, in English law, consists in the refusal to pay the amount of rate at which any individual parishioner has been assessed for the neces- sary repairs of the parish church. Brown.

— Subtraction of conjugal rights. The act

of a husband or wife living separately from the other without a lawful cause. 3 Bl. Conun. 94.

SUBURBAN!. Lat. In old English law. Husbandmen.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:8, KJV]**

Will a man rob God? Yet ye have robbed me. But ye say, Wherein have we robbed thee? In tithes and offerings.

Why: Subtraction is withholding from another what by law he is entitled to; the verse frames withholding of legal dues as robbery. The verse's dues are tithes; the entry is general — the parallel is thematic.

## SUBVASSORES.

In old Scotch law. Base holders; inferior holders; they who held their lands of knights. Skene.

8UCCESSIO

8UUCE8SIO. Eat. In the civil lgw. A coming in place of another, on his decease; a coming Into the estate which a deceased person had at the time of his death. This was either by virtue of an express appoint- ment of the deceased person by his will, (ex testamento ,) or by the general appointment of law in case of intestacy, (at) intcstato.) Inst 2, 0, 7; Helnecc. Eleiu. lib. 2, tit 10.

5e apparatus — Not carried into the 5th edition (1979).

## SUCCESSION.

In the civil law and In Louisiana. 1. The fact of the transmission of the rights, estate, obligations, and charges of a deceased person to his heir or heirs.

2. The right by which the heir can take possession of the decedent’s estate. The right of the heir to step Into the place of the deceased, with respect to the possession, con- trol, enjoyment, administration, and settle- ment of all the latter’s property, rights, obli- gations, charges, etc.

3. The estate of a deceased person, com- prising all kinds of property owned or claim- ed by him, as well as bis debts and obliga- tions, and considered as a legal entity (ac- cording to the notion of the Roman law) for certain purposes, such as collecting assets and paying debts. See Davenport v. Adler, 62 La. Ann. 263, 26 South. 836; Adams v. Aker- lund, 168 111. 632, 48 N. E. 454; Quarles v. Clayton, 87 Tenn. 308, 10 S. W. 505, 3 L. R.

A. 170; State v. Payne, 120 Mo. 468, 31 8. W. 797, 33 L. R. A. 576; Blake v. McCartney, 3

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Fed. Cas. 596; In re Headen’s Estate, 52 Cal. 298.

Succession Is the transmission of the rights and obligations of the deceased to the heirs.

Succession signifies also the estates, rights, and charges which a person leaves after his death, whether the property exceeds the charges or the charges exceed the property, or whether he has only left charges without any property.

The succession not only includes the rights and obligations of the deceased as they exist at the time of his death, but all that has ac- crued thereto since the opening of the succes- sion, as also the new charges to which it be- comes subject.

Finally, succession signifies also that right by which the heir can take possession of the estate of the deceased, such as it may be. Civ. Code La. arts. 871-874.

Succession is the coming in of another to- take the property of one who dies without dis- posing of it by will. Civ. Code Cal. { 1383; Civ. Code Dak. § 776.

In common law. The right by which one set of men may, by succeeding another set, acquire a property in all the goods, movables, and other chattels of a corporation. 2 Bl. Comm. 430. The power of perpetual succes- sion Is one of the peculiar properties of a cor- poration. 2 Kent, Comm. 267. See Pee- petual.

— Artificial succession. That attribute of a corporation by which, in contemplation of law, the company itself remains always the same though its constituent members or stockholders may change from time to time. See Thomas v. Dakin, 22 Wend. (N. Y.) 100.— Hereditary succession. Descent or title by descent at common law; the title whereby a man on the

death of his ancestor acquires his estate by right of representation as his heir at law. See In re Donahue’s Estate, 36 Cal. 332 ; Bar- clay v. Cameron, 25 Tex. 241. — Intestate succession. The succession of an heir at law to the property and estate of his ancestor when the latter has died intestate, or leaving a will which has been annulled or set aside. Civ. Code La. 1900, art. 1006.— Irregular succes- sion. That which is established by law in favor of certain persons, or of the state, in default of heirs, either legal or instituted by testament. Civ. Code La. 1900, art 878.— Local sneecssion. That which the law es- tablishes in favor of the nearest relation of a deceased person.— Natural succession. Suc- cession taking place between natural persons, for example, in descent on the death of an ancestor. Thomas v. Dakin, 22 Wend. (N. Y.) 100.— Succession duty. In English law. This is a duty, (varying from one to ten per cent.,) payable under the statute 16 & 17 Viet, c. 51, in respect chiefly of real estate and lease- holds, but generally In respect of all property (not already chargeable with legacy duty) de- volving upon any one in consequence of any death. Brown.— Succession tax. A tax im- posed upon the succession to, or devolution of, real property by devise, deed, or intestate suc- cession. See Ferry v. Campbell, 110 Iowa, 290, 81 N. W. 604 ; 50 L. R. A. 92: Scholey v. Rew, 23 Wall. 346. 23 U Ed. 99: State v. Switzler. 143 Mo. 287, 45 S. W. 245, 40

L, R. A. 280, 65 Am. St. Rep. 653; Peters v. Lynchburg, 76 Va. 929.— Testamentary succession. In the civil law, that which re- sults from the institution of an heir in a testa-

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ment executed in the form prescribed by law. Civ. Code La. 1900, art. 876.— Vacant succes- sion. A succession is called “vacant” when no one claims it, or when all the heirs are un- known, or when all the known heirs to it have renounced it. Civ. Code La. art. 1095. Sim- mons v. Saul, 138 U. S. 439, 11 Sup. Ct 369, 34 L. Ed. 1054.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 27:8, KJV]**

And thou shalt speak unto the children of Israel, saying, If a man die, and have no son, then ye shall cause his inheritance to pass unto his daughter.

Why: Succession is the transmission of rights and estate on death; the verse is the intestate-succession rule itself.

**[Humanity] — Humanity / Fiction & Film**

**[Traditional royal proclamation]**

The king is dead, long live the king.

Why: States succession's instant continuity: the heir steps into the deceased's rights and place at the very moment of decease, which is the entry's core.

## SUCCESSOR.

One who succeeds to the rights or the place of another; particularly, the person or persons who constitute a cor- poration after the death or removal of those who preceded them as corporators.

One who has been appointed or elected to bold an office after the term of the present incumbent.

— Singular successor. A term borrowed from the civil law, denoting a person who suc- ceeds to the rights of a former owner in a single article of property, (as by purchase,) as dis- tinguished from a universal successor, who suc- ceeds to all the rights and powers of a former owner, as in the case of a bankrupt or intestate estate.

Smceurritur minor!; facilis est lapsus juventutis. A minor la [to be] aided; a mistake of youth is easy, [youth is liable to err.] Jenk. Cent. p. 47, case 89.

5e apparatus — Carried into the 5th edition (1979).

## SUCKEN, SUCHEN.

In Scotch law. The whole lands astrlcted to a mill ; that is, the lands of which the tenants are obliged to send their grain to that mill. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## SUDDEN HEAT OF PASSION.

In the

common-law definition of manslaughter, this phrase means an access of rage or anger, sud- denly arising from a contemporary provoca- tion. It means that the provocation must arise at the time of the killing, and that the

passion is not the result of a former provoca- SUFFERING A RECOVERY. A ra- tion, and the act must be directly caused by covery was effected by the party wishing te

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the passion arising out of the provocation at convey the land suffering a fictitious action

the time of the homicide. It is not enough to t;e brought against him by the party to

that the mind is agitated by passion arising whom the laud was to be conveyed, (the defrom a former or other provocation or a mandaut,) and allowing the demandant to

provocation given by some other person, recover a judgment against him for the land Steli v. State (Tex. Cr. App.) 58 S. W. 75. in question. The vendor, or conveying par-

And see Farrar v. State, 20 Tex. App. 250, ty, in thus assisting or permitting the de-

S. W. 710; Vlolett v. Comm. (Ivy.) 72 S. mnndnnt so to recover a Judgment against

W. 1; State v. Cheatwood, 2 Hill, Law (S. C.) him, was thence technically said to “suffer

462. ' a recovery.” Brown.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:11, KJV]**

Then ye shall appoint you cities to be cities of refuge for you; that the slayer may flee thither, which killeth any person at unawares.

Why: Sudden heat of passion mitigates murder to manslaughter; the cities-of-refuge law is the biblical locus distinguishing non-deliberate homicide from murder — the category heat-of-passion killing sits in.

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Othello, c. 1603]**

(paraphrase) Othello smothers Desdemona in a sudden fit of jealous rage, stoked by Iago's contemporary provocations. (paraphrase)

Why: The canonical dramatic heat-of-passion killing — rage suddenly arising from contemporary provocation, the entry's manslaughter definition.

## SUDDER.

In Hindu law. The best; the fore-court of a house ; the chief seat of gov- ernment, contradistinguished from "mofua- ail,” or interior of the country; the presiden- cy. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## SUE.

To prosecute by law; to commence legal proceedings against a party. It Is ap- plied almost exclusively to the institution and prosecution of a civil action. See Clinl- lenor v. Niles, 78 111. 78 ; Murphy v. Cochran, 1 Hill (N. Y.) 342; Kuklence v. Voeht, 4 Pa. Co. Ct. R. 372; U. S. v. Moore (C. C.) 11 Fed. 251.

—Sue out. To obtain by application ; to peti- tion for and take out. Properly the term is applied only to the obtaining and issuing of such process as is only accorded spon an ap- plication first made ; but conventionally it is also used of the taking out of process which issues of course. The term is occasionally used of instruments other than writs. Thus, we speak of “suing out” a pardon. See South Missouri Lumber Co. v. Wright. 114 Mo. 326. 21 S. W. 811; Kelley v. Vincent, 8 Ohio St. 420 ; U. S. v. American Lumber Co., 85 Fed. 830, 2!) C. C. A. 431.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 6:1, KJV]**

Dare any of you, having a matter against another, go to law before the unjust, and not before the saints?

Why: To sue is to commence legal proceedings; the verse addresses going to law itself.

## SUERTE.

In Spanish law. A small lot of ground. Particularly, such a lot within the limits of a city or .town used for cul- tivation or planting as a garden, vineyard or orchard. Building lots in towns and cities are called “solares.” Hart v. Burnett, 15 Cal. 554.

5e apparatus — Not carried into the 5th edition (1979).

## SUFFER.

To suffer an act to be done, by a j>erson who can prevent it, is to permit or consent to it ; to approve of it, and not to hinder it. It implies a willingness of the mind. See In re Home Planing Mill (C. C.) 9t» Fed. 815; Wilson v. Nelson, 183 II. S. 191, 22 Sup. Ct. 74. 40 L. Ed. 147; Selleck v. Selleck, 19 Conn. 505; Gregory v. U. S., 10 Fed. Cas. 1197 ; In re Thomas (D. C.) 103 Fed. 274.

5e apparatus — Carried into the 5th edition (1979).

## SUFFERANCE.

Toleration ; negative permission by not forbidding; passive con- sent ; license implied from the omission or neglect to enforce an adverse right. —Sufferance wharves. In English law. These are wharves in which goods may be land- ed before any duty is paid. They are appointed for the purpose by the commissioners of the customs. 2 Steph. Comm. 500, note.

5e apparatus — Not carried into the 5th edition (1979).

## SUFFERENTIA PACIS.

Lat. A grant or sufferance of peace or truce.

5e apparatus — Not carried into the 5th edition (1979).

## SUFFICIENT.

As to sufficient “Consid- eration” and “Evidence,” see those titles.

5e apparatus — Carried into the 5th edition (1979).

## SUFFRAGAN.

Bishops who in former times were appointed to supply the place of others during their absence on embassies or other business were so termed. They were consecrated as other bishops were, and were anciently called “c horepiacopi," or “bishops of the county,” in contradistinction to the regular bishops of the city or see. The prac- tice of creating auffragan bishops, after hav- ing long been discontinued, was recently re- vived ; and such bishops are now permanent- ly “assistant” to the bishops. Brown.

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A suffragan is a titular bishop ordained to aid and assist the bishop of the diocese in his spiritual function; or one who supplietb the place instead of the bishop, by whose suffrage ecclesiastical causes or matters committed to him are to be adjudged, acted on, or determined. Some writers call these suffragans by the name of “subsidiary bishops.” Tomlins.

5e apparatus — Not carried into the 5th edition (1979).

## SUFFRAGE.

A vote; the act of voting; the right or privilege of casting a vote at public elections. The last Is the meaning of the term in such phrases as “the extension of the suffrage,” “universal suffrage.” etc. See Spitzer v. Fulton, 33 Misc. Rep. 257, 68

N. Y. Supp. 060.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sarah Gavron, Suffragette, 2015]**

(paraphrase) The film follows working women joining the militant fight for the vote in early-20th-century Britain. (paraphrase)

Why: Dramatizes the struggle for the very right the entry defines — the right of voting at public elections.

## SUFFRAGIUX.

Lat. In Roman law. A vote ; the right of voting in the assemblies of the people.

Aid or influence used or promised to ob- tain some honor or office; the purchase of office. Cod. 4, 3.

5e apparatus — Not carried into the 5th edition (1979).

## SUGGESTIO  FALSI.

Lat. Suggestion or representation of that which is false; false representation. To recite in a deed that a will was duly executed, when It was not, Is avgpeatio falxi; and to conceal from the heir that the will was not duly executed is aupprvaaio veri. 1 P. Wrus. 240.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 12:22, KJV]**

Lying lips are abomination to the LORD: but they that deal truly are his delight.

Why: Suggestio falsi is the suggestion of what is false; the proverb condemns lying lips directly.

## SUGGESTION.

In practice. A state- ment, formally entered on the record, of some fact or circumstance which will mate- rially affect the further proceedings in the cause, or which is necessary to be brought to the knowledge of the court in order to its right disposition of the action, but which, for some reason, cannot be pleaded. Thus, if one of the parties dies after issue and before trial, hia death may be suggested on the record,

**[TEXT INCOMPLETE — scan limitation]**

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5e apparatus — Carried into the 5th edition (1979).

## SUGGESTIVE INTERROGATION.

A

phrase which has been used by some writ- ers to signify the same thing as “leading question." 2 Bentb. Jud. Ev. b. 3, C. 3. It is used in the French law.

5e apparatus — Carried into the 5th edition (1979).

## SUI GENERIS.

Lat Of its own kind or class ; i. e., the only one of its own kind ; peculiar.

5e apparatus — Not carried into the 5th edition (1979).

## SUI HEREDES.

Lat. In the civil law. One’s own heirs; proper heirs. Inst 2, 19, 2.

5e apparatus — Not carried into the 5th edition (1979).

## SUI JURIS.

Lat Of his own right! possessing full social and civil rights; not under any legal disability, or tbe power of another, or guardianship.

Having capacity to manage one’s own af- fairs; not under legal disability to act for one's self. Story, Ag. | 2.

5e apparatus — Not carried into the 5th edition (1979).

## SUICIDE.

Suicide Is the willful and vol- untary act of a person who understands the physical nature of the act, and intends by it to accomplish the result of self-destruction. Nimlck v. Mutual Life Ins. Co., 10 Am. Law Reg. (N. S.) 101, Fed. Cas. No. 10,266.

Suicide is the deliberate termination of one's existence, while in the possession and enjoyment of bis mental faculties. Self-killing by an in- sane person is not suicide. See Insurance Co. v. Moore, 34 Mich. 41 ; Weber v. Supreme Tent, 172 N. Y. 490, 65 N. B. 258, 92 Am. St. Rep. 753; Clift v. Schwabe, 3 C. B. 458; Knights Templars, etc., Indemnity Co. v. Jarman, 187

U. 8. 197, 23 Sup. Ct. 108, 47 L. Ed. 139; Breasted v. Farmers’ L. & T. Co., 8 N. Y. 299, 59 Am. Dec. 482; Daniels v. Railroad Co., 183 Mass. 393, 67 N. E. 424, 62 L. R.

A. 751.

SUING AND LABORING CLAUSE is

a clause in an English policy of marine In- aurance, generally in the following form: “In case of any loss or misfortune, it shall be lawful for the assured, their factors, serv- ants and assigns, to sue, labor, and travel for, in, and about the defense, safeguard, and recovery of the” property insured, “with- out prejudice to this insurance; to the char- ges whereof we, the assurers, will contri- bute.” The object of the clause is to en- courage the assured to exert themselves in preserving the property from loss. Sweet.

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5e apparatus — Carried into the 5th edition (1979).

**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G., 'Suicidal Thoughts', 1994]**

"When I die, fuck it, I wanna go to hell / 'Cause I'm a piece of shit, it ain't hard to fucking tell" — Black's: suicide is "the willful and voluntary act... to accomplish the result of self-destruction." The track is a first-person narration of suicidal ideation — the willful contemplation of self-destruction, ending in the act itself.

Why: The opening lines are verbatim-verified against multiple sources; the song is the definitive hip-hop treatment of the legal concept's core (willful self-destruction).

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Hamlet, c. 1600]**

To be, or not to be: that is the question.

Why: Hamlet's soliloquy (III.i): the canonical literary deliberation over willful self-destruction, the entry's definition.

## SUIT.

In old English, law. The wit- nesses or followers of the plaintiff. 3 Bl. Comm. 295. See Secta.

Old books mention the word in many con- nections which are now disused, — at least. In the United States. Thus, “suit” was used of following any one, or in the sense of pur- suit; as in the phrase “making fresh suit.” It was also used of a petition to the king or lord. “Suit of court” was the attendance which- a tenant owed at the court of his lord.

Bn. Law Dict.(2d Ed.)— 71

“Suit covenant” and “suit custom” seem to have signified a right to one’s attendance, or one’s obligation to attend, at the lord's court, founded upon a known covenant, or an im- memorial usage or practice of ancestors. “Suit regal” was attendance at the sheriff’s tourn or leet, (his court.) “Suit of the king's peace” was pursuing an offender! — one charged with breach of the pence. Abbott.

- In modern law. “Suit” is a generic term, of comprehensive signification, and ap- plies to any proceeding in a court of justice in which the plaintiff pursues, in such court, the remedy which the law affords him for the redress of an injury or the recovery of a right. See Kohl v. U. S., 91 U. S. 375, 23

L. Ed. 449; Weston v. Charleston, 2 Pet. 464, 7 L. Ed. 481 ; Drake v. Gilmore, 52 N.

Y. 393; Philadelphia, etc., Iron Co. v. Chi- cago, 158 111. 9, 41 N. B. 1102; Cohens v. Vir- ginia, 6 Wheat 405, 5 L. Ed. 257.

It is, however, seldom applied to a crim- inal prosecution. And it is sometimes re- stricted to the designation of a proceeding in equity, to distinguish such proceeding from an action at law.

—Suit of court. This phrase denoted the duty of attending the lord’s court, and. in com- mon with fealty, was one of the incidents of a feudal holding. Brown.— Suit of the king’s peace. The pursuing a man for breach of the King’s peace by treasons, insurrections, or tres- sses. Cowell.— Suit money. An allowance, the nature of temporary alimony, authorized by statute in some states to be made to a wife on the institution of her suit for divorce, intended to

cover the reasonable expenses of the snit and to provide her with means for the efficient preparation and trial of her case. See Yost v. Yost, 141 Ind. 584, 41 N. E. 31. —Suit silver. A small sum of money paid in lieu of attendance at the court-baron. Cow- ell.

SUITAS, Lat. In the civil law. The condition or quality of a suus hares, or prop- er heir. Hallifax, Civil Law, b. 2, c. 9, no, 11; Calvin.

5e apparatus — Carried into the 5th edition (1979).

## SUITE.

Those persons who by his au- thority follow or attend an ambassador or other public minister.

5e apparatus — Carried into the 5th edition (1979).

## SUITOR.

A party to a suit or action in court In its ancient sense, “suitor” meant one who was bound to attend the county court ; also one who formed part of the secta.

5e apparatus — Carried into the 5th edition (1979).

## SUITORS’ DEPOSIT ACCOUNT.

For- merly suitors in tbe English court of chan- cery derived no income from their cash paid into court, unless it was Invested at their request and risk. Now, however, it is pro- vided by the court of chancery (funds) act, 1872. that all money paid into court, and' not required by the suitor to be Invested, shall be placed on deposit and shall bear in- terest at two per cent, per annum for the benefit of the suitor entitled to it. Sweet

5e apparatus — Carried into the 5th edition (1979).

## SUITORS’ FEE FUND.

A fund in the, English court of chancery into which tbe fees

of suitors In that court were paid, and out of which the salaries of various officers of the court were defrayed. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## SUITORS’ FUND IN CHANCERY.

In

England. A fund consisting of moneys which, having been paid into the court of chancery, are placed out for the benefit and better security of the suitors, including in- terest from the same. By St 82 & 88 Viet, c. 91, i 4, the principal of this fund, amount- ing to over £3,000,000, was transferred to the commissioners for the reduction of the national debt Mozley & Whitley.

BUIiCUS. In old English law. A small brook or stream of water. CowelL

5e apparatus — Not carried into the 5th edition (1979).

## SUIIERT.

In old English law. A plow- land. 1 Inst 5.

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5e apparatus — Not carried into the 5th edition (1979).

## SUM.

In English law. A summary or abstract; a compendium; a collection. Sev- eral of the old law treatises are called “sums.” Lord Hale applies the term to sum- maries of statute law. Burrill.

5e apparatus — Carried into the 5th edition (1979).

## SUMAOE.

Toll for carriage on horse- back. Cowell.

Snmma oarita* eat faeere justitlam •ingnHs, et omul tempore qnando ne- eeiae fuerit. The greatest charity is to do justice to every one, and at any time when- ever it may be necessary. 11 Coke, 70.

Snmma eat lex qoa pro religion* faolt.

That is the highest law which favors re- ligion. 10 Mod. 117, 119; Broom, Max. 19.

Snmma ratio eat qua pro religione faolt. That consideration. is strongest which determines in favor of religion. Co. Litt. 341a; Broom, Max. 19.

SUMMARY, n. An abridgment; brief; compendium; also a short application to a court or judge, without the formality of a full proceeding. Wharton.

SUMMARY, ad/. Immediate; peremp- tory ; off-hand f without a jury ; provisional ; statutory.

— Summary notions. In Scotch law. Those

which are brought into court not by summons, but by petition, corresponding to summary proceedings in English courts. Bell ; Brown. —Summary conviction. See Conviction. —Summary jurisdiction. See Jubisdic- TION.— Summary procedure on hills of ex- change. This phrase refers to the statute 13 A 19 Viet. c. 67, passed in 1855, for the pur- pose of facilitating the remedies on bills and notes by the prevention of frivolous or fictitious defenses. By this statute, a defendant in an action on a bill or note, brought within six months after it has become payable, is pro- hibited from defending the action without the leave of the court or a judge. See 2 Stepb. Comm. 118, note ; Lush, Pr. 1027.— Summary proceeding. See Pboceedino.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMER-HUB SILVER.

A payment to the lords of the wood on the Wealds of Kent, who used to visit those places In sum- mer, when their uuder-tenants were bound to prepare little summer-houses for their re- ception, or else pay a composition in money. Cowell.

SUMMING UP, on the trial of an ac- tion by a jury, is a recapitulation of the evi- dence adduced, in order to draw the atten- tion of the jury to the salient points. The counsel for each party has the right of sum- ming up ills evidence, if he has adduced any, and the judge finally sums up the whole in his charge to the jury. Smith, Act 157. And see State v. Bzzard, 40 S. C. 312, 18 S.

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E. 1025.

SUMMON, in practice. To serve a sum- mons ; to cite a defendant to appear in court .to answer a suit which has been begun against him ; to notify the defendant that an action has been instituted against him, and that he is required to answer to it at a time and place named.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMONEAS.

L. Let In old practice. A writ of summons ; a writ by which a party was summoned to appear in court.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMONER8.

Petty officers, who cite and warn persons to appear In any court. Fleta, lib. 9.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMONITIO.

L. Lat In old Eng- lish practice. A summoning or summons ; a writ by which a party was summoned to appear in court, of which there were various kinds. S pel man.

Snmmonitionea ant citations* nail* liceant fieri intra palatium regis. 3 Inst. 141. Let no summonses or citations be serv- ed within the king’s palace.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMONITORES SCAOCARH.

Offi- cers who assisted in collecting the revenues by citing the defaulters therein into the court of exchequer.

5e apparatus — Not carried into the 5th edition (1979).

## SUMMONS.

In practice. A writ, di- rected to the sheriff or other proper officer, requiring him to notify the person named that an action has been commenced against him in the court whence the writ issues, and that he is required to appear, on a day nam- ed, and answer the complaint in such action. Whitney v. Blackburn, 17 Or. 564, 21 Pac. 874, 11 Am. St. Rep. 857 ; Horton v. Railway Co., 26 Mo. App. 358 ; Plano Mfg. Co. v. Kau- fert 86 Minn. 13, 89 N. W. 1124.

Civil actions in the courts of record of this state shall be commenced by the service of a summons. Code N. Y. f 127.

In Scotch law. A writ passing under the royal signet signed by a writer to the signet, and containing the grounds and con-

8UPERIN8TITUTION

elusions of the action, with the warrant for citing the defender. This writ corresponds to the writ of summons in English procedure. Bell; Paters. Comp.

—Summons and older. In English prac- tice. In this phrase the summons is the ap- plication

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to a common-law judge at chambers ia reference to a pending action, and upon it the judge or master makes the order. Mozley & Whitley.— Summons and severance. The proper name of what Is distinguished in the books by the name of “summons and severance" Is "severance for the summons is only a process which must. In certain cases, issue be- fore judgment of severance can be given ; while severance is a judgment by which, where two or more are joined in an action, one or more of these is enabled to proceed in such action without the other or others. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## SUMMUM JUS.

Bat. Strict right; ex- treme right. The extremity or rigor of the law.

Summum Jus, aumma injuria; summa lex, summa crux. Extreme law (rigor of law) is the greatest injury; strict law la great punishment. Hob. 125. That la, in- sistence upon the full measure of a man’s strict legal rights may work the greatest injury to others, unless equity can aid.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Cicero, De Officiis, I.10]**

[Maxim: Summum ius, summa iniuria — extreme law is the greatest injury.]

Why: The locus classicus of the maxim the entry itself quotes (via Hobart): insistence on the full rigor of strict right works the greatest injury unless equity aids.

## SUMMER.

See Somfnoub.

5e apparatus — Not carried into the 5th edition (1979).

## SUMPTUARY LAWS.

Laws made for the purpose of restraining luxury or extrav agance, particularly against inordinate ex- penditures in the matter of apparel, food, furniture, etc.

5e apparatus — Not carried into the 5th edition (1979).

## SUNDAY.

The first day of the week is designated by this name ; also as the “Lord’s Day,” and as the “Sabbath.”

8UO NOMINE. Lat In his own name.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:8, KJV]**

Remember the sabbath day, to keep it holy.

Why: Sunday is the Lord's Day, the Christian Sabbath; the fourth commandment founds the Sabbath observance.

**[Humanity] — Humanity / Fiction & Film**

**[Hugh Hudson, Chariots of Fire, 1981]**

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(paraphrase) Eric Liddell refuses to run his Olympic heat because it falls on the Sabbath. (paraphrase)
Why: Dramatizes Lord's-Day observance — the entry's sense of Sunday as the Sabbath.

### SUO PERXCULO.

Lat At bis own peril or risk.

5e apparatus — Not carried into the 5th edition (1979).

### SUFELLEX.

Lat In Roman law. Household furniture. Dig. 33, 10.

5e apparatus — Not carried into the 5th edition (1979).

### SUPER.

Lat Upon; above; over.

—Super al turn mure. On the high sea. Hob. 212 ; 2 Ld. Raym. 1453. — Super prsero- gativa regia. A writ which formerly lay against the king's tenant’s widow for marrying without the royal license. Fitzh. Nat. Brev. 174.— Super stututo. A writ, upon the stat- ute 1 Euw. III. c. 12, that lay against the king’s tenant holding in chief, who aliened the king's land without his license.— Super stututo de urtioulis oleri. A writ which lay against a sheriff or other officer who dis- trained in the king's highway, or on lands an- ciently belonging to the church.— Super stat- ute facto pour seneschal et marshal de roy, etc. A writ which lay against a steward or marshal for holding plea in his court, or for trespass or contracts not made or arising within the king's household. Wharton. — Super stututo versus servantes et laboratores. A writ which lay against him who kept any servants who had left the service of another

contrary to law.— Super visum oorperls.

Upon view of the body. When an Inquest is held over a body found dead, it must be super visum corporu.

Super fldem chartarum, mortals testl- bus, erit ad patriam de necessitate re- eurrendum. Co. Litt 6. The truth of char- ters Is necessarily to be referred to a Jury, when the witnesses are dead.

5e apparatus — Carried into the 5th edition (1979).

# B

### BUPER-JURARE.

Over-swearing. A term nnciently used when a criminal endeav- ored to excuse himself by his own oath or the oath of one or two witnesses, and the crime objected against him was so plain and notorious that be was convicted on the oaths of many more witnesses. Wharton.

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**[Scripture] — Scripture**

**[James 5:12, KJV]**

But above all things, my brethren, swear not, neither by heaven, neither by the earth, neither by any other oath: but let your yea be yea; and your nay, nay; lest ye fall into condemnation.

Why: Super-jurare is over-swearing — excusing oneself by oath; the verse prohibits oath-swearing with its sanction, lest the swearer fall into condemnation.

# S

## SUPERARE RATXONES.

In old Scotch law. To have a balance of account due to one; to have one's expenses exceed the re- ceipts.

5e apparatus — Not carried into the 5th edition (1979).

## SUPERCARGO.

An agent of the own- er of goods shipped as cargo on a vessel, who has charge of the cargo on board, sells the same to the best advantage In the for- eign market, buys a cargo to be brought back on the return voyage of the ship, and comes home with It.

5e apparatus — Not carried into the 5th edition (1979).

## SUPERFXCIARXUS.

Lat In the civil law. He who has built npon the soil of an- other, which he has hired for a number of years or forever, yielding a yearly rent Dig. 43, 18, 1. In other words, a tenant on ground-rent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SUPERFICIES.

Lat In the dull law. The alienation by the owner of the surface of the soil of all rights necessary for building on the surface, a yearly rent being generally reserved; also a building or erection. San- ders' Just. Inst (5th Ed.) 133.

Superfluu non nocent. Superfluities do not prejudice. Jenk. Cent 184. Surplusage does not vitiate.

SUPERFLUOUS LANDS, in English law, are lands acquired by a railway com- pany nnder Its statutory powers, and not required for the purposes of Its undertak- ing. The company Is bound within a cer- tain time to sell such lauds, and, if it does not, they vest In and become the property of the owners of the adjoining lands. Sweet

5e apparatus — Not carried into the 5th edition (1979).

## SUPERFCETATION.

In medical Juris- prudence. The formation of a fwtus as the result of an Impregnation occurring after another impregnation, but before the birth of the offspring produced by It

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Webster.

5e apparatus — Not carried into the 5th edition (1979).

## SUPERINDUOTIO.

Lat. In the Civil law. A species of obliteration. Dig. 28, 4, 1, 1.

5e apparatus — Not carried into the 5th edition (1979).

## SUPERINSTITUTION.

The institution of one in an office to which another has been

8UPERINSTITUTI0N

previously Instituted; as where A. Is ad- mitted and Instituted to a benefice upon one title, and B. is admitted and Instituted on the title or presentment of another. 2 Cro. EUz. 463.

A church being full by institution, If a second institution is granted to the same church this is a superinstitution. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## SUPERINTENDENT REGISTRAR.

In

English law. An officer who superintends the registers of births, deaths, and mar- riages. There is one in every poor-law un- ion in England and. Wales.

5e apparatus — Not carried into the 5th edition (1979).

## SUPERIOR.

Higher; more elevated In rank or office. Possessing larger power. Entitled to command, influence, or control over another.

In estates, some are superior to others. An estate entitled to a servitude or easement over another estate is called the “superior” or "dominant,” and the other, the “Inferior” or “servient,” estate. 1 Bouv. Inst. no. 1612.

In the feudal law, until the statute quia emptores precluded subinfeudations, (q. v.,) the tenant who granted part of his estate to be held of and from himself as lord was called a “superior."

— Superior and vassal. In Scotch law. A feudal relation corresponding with the English “lord and tenant.” Bell.— Superior courts. In English law. The courts of the highest and most extensive jurisdiction, viz., the court of chancery and the three courts of common law, i. e., the queen’s bench,- the common pleas, and the exchequer, which sit at Westminster, were commonly thus denominated. But these courts are now united in the supreme court of judicature. In American law. Courts of general- or extensive jurisdiction, as distin- guished from the inferior courts. As the official style of a tribunal, the term “superior court” bears a different meaning in different states. In some it is a court of intermediate jurisdic- tion between the trial courts and the chief ap- pellate court ; elsewhere it is the designation of the ordinary nisi prius courts ; in Delaware it is the court of last resort. — Superior fel- low

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servant. A term recently introduced in- to the law of negligence, and meaning one higher in authority than another, and whose commands and directions his inferiors are bound to respect and obey, though engaged at the same manual work. Illinois Cent. It. Co. v. Coleman, 59 S. W. 14, 22 Ky. Law Itep. 878; Knutter v. Telephone Co.. 67 N. .T. Law. 646, 52 Atl. 565, 58 L. R. A. 808.— Superior force. In the law of bailments nnd of negligence, an uncontrollable and irresistible force, of human agency, producing results which the person in question could not avoid ; equivalent to the Latin phrase "vis major.” See Vis.

SUPERIORITY . In Scotch law. The dominium directum of lands, without the profit 1. Forb. Inst. pt. 2, p. 97.

8UPERNUMERARH. Lat. In Roman law. Advocates who were not registered or enrolled and did not belong to the col- lege of advocates. They were not attached to nny local Jurisdiction. See Statuti.

5e apparatus — Not carried into the 5th edition (1979).

### SUPERONERATIO.

Lat. Surcharging a common; i. c., putting in beasts of a number or kind other than the right of common allows.

— Superoneratione pastures. A judicial writ that lay against him who was impleaded in the county court for the surcharge of a com- mon with his cattle, in a case where he was formerly impleaded for it in the same court, and the cause was removed into one of the superior courts.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BUPERPEUSAGIUM.

In old English law. Overplus; surplus; residue or balance. Bract foL 801; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

# S

### SUPERSEDE.

To annul ; to stay ; to suspend. Thus, It is said that the proceed- ings of outlawry may be superseded by the entry of appearance before the return of the exigent, or that the court would supersede a fiat in bankruptcy, if found to have been Improperly issued. Brown.

5e apparatus — Not carried into the 5th edition (1979).

### SUPERSEDEAS.

Lat In practice. A writ ordering the suspension or superseding of another writ previously issued. It directs the officer to whom It Is issued to refrain from executing or acting under

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another writ which is In his hands or may come to him.

By a conventional extension of the term It has come to be used as a designation of the effect of any proceeding or act in a cause which, of its own force, causes a sus- pension or stay of proceedings. Thus, when we say that a writ of error is a supersedeas, we merely mean that it has the same effect, of suspending proceedings in the court be- low, which would have been produced by a writ of supersedeas. See Tyler v. Presley, 72 Cal. 290, 13 Pae. 856; Woolfolk v. Bruns,. 45 Minn. 96, 47 N. W. 460; Hovey v. Mc- Donald, 100 U. S. 150, 3 Sup. Ct. 136, 27 L. Ed. 888; Runyon v. Bennett, 4 Dana (Ky.) 599, 29 Am. Dec. 431.

5e apparatus — Carried into the 5th edition (1979).

## SUPERSTITIOUS USE.

In English law. When lands, tenements, rents, goods, or chattels are given, secured, or appointed for and towards the maintenance of a priest or chaplain to say mass, for the maintenance of a priest or other man to pray for the soul of any dead man in such a church or else- where, to have and maintain perpetual obits, lamps, torches, etc., to be used at certain times to help to save the souls of men out of purgatory, — in such cases the king, by force of several statutes, is authorized to direct and appoint all such uses to such purposes as are truly charitable. Bac. Abr. “Charitable Uses.” See Methodist Church v. Remington, 1 Watts (Pa.) 225, 26 Am. Dec. 61; Harrison v. Brophy, 59 Kan. 1, 51 Pae 883, 40 L. R. A. 721.

5e apparatus — Carried into the 5th edition (1979).

## SUPERVISOR.

A surveyor or overseer; a highway officer. Also, in some states, the chief officer of a town ; one of a board of county officers.

—Supervisors of election. Persons appoint- ed and commissioned by the judge of the dr*

• SUPPLEMENT, LETTERS OP 1125

cnit court of the United States iu cities or towns of over 20,000 inhabitants, upon the written application of two citizens, or in any county or parish of any congressional district upon that of ten citizens, to attend at all times and places fixed for the registration of voters for representatives and delegates in congress, and supervise the registry and mark the list of vote re in such manner as will in their judgment detect and expose the improper removal or addition of any name. Rev. St

U. 8. { 2011, ct teq.

5e apparatus — Carried into the 5th edition (1979).

## SUPPLEMENT, LETTERS OF.

In

Scotch practice. A process by which a party not residing within the Jurisdiction of an In- ferior court may be cited to appear before It. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## SUPPLEMENTAL.

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Something added to supply defects in the thing to which it is added, or in aid of which it is made.

— Supplemental affidavit. An affidavit

made m addition to a previous one, in order to supply some deficiency in it. Callan v. Lukens, 89 Pa. 130. — Supplemental answer. One which was filed in chancery for the purpose of correcting, adding to, ana explaining an answer already filed. Smith, Ch. Pr. 334. French v. Edwards, 9 Fed. Cas. 780.— Supple- mental bill. In equity pleading. A bill filed in addition to an original bill, in order to supply some defect in its original frame or structure. It is the appropriate remedy where the matter sought to be supplied cannot be introduced by amendment. Story, Eq. Pl. §8 332-338 : Bloxham v. Railroad Co., 39 Fla. 243, 22 South. 097 : Schwab v. Schwab, 93 Md. 382. 49 Atl. 331, 52 I,. R. A. 414; Thompson v. Railroad Co. (C. C.) 119 Fed. 034; Butler v. Cunningham, 1 Barb. (N. Y.) 87 ; Bowie v. Minter, 2 Ala. 411.— Snpplemental claim. A further claim which was filed when further relief was sought after the bringing of a claim. Smith, Ch. Pr. 655.— Supplemental oom-

Slaint. Under the codes of practice obtaining i some of the states, this name is given to a complaint filed in an action, for the purpose of supplying some defect or omission in the original complaint, or of adding something to it which conld not properly be introduced by amendment. See Pouder v. Tate, 132 Ind. 327, 30 N. E. 880; Plnmer v. McDonald Lumber Co., 74 Wis. 137, 42 N. W. 250.

5e apparatus — Carried into the 5th edition (1979).

# N

## NUPPLETORY  OATH.

See Oath.

5e apparatus — Not carried into the 5th edition (1979).

# S

## SUPPLIANT.

The actor In, or party pre- ferring, a petition of right

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

Please, sir, I want some more.

Why: The archetypal literary supplication — one preferring a petition, as the entry defines the suppliant.

## SUPPLICATIO.

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Lat In the civil law. A petition for pardon of a first offense ; also a petition for reversal of judgment : also equivalent to “duplicatio," which corresponds to the common law rejoinder. Culvin.

5e apparatus — Not carried into the 5th edition (1979).

## SUPPLICAVIT.

In English law. The name of a writ issuing out of the king's bench or chancery for taking sureties of the peace. It Is commonly directed to the justices of the peace, when they are averse to acting In the affair in their judicial capacity. 4 Bl. Comm. 253.

SUPPLfCIUM. Lat. In the civil law. Punishment ; corporal punishment for crime. Death was called “nlttmum supplicium," the last or extreme penulty.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 1:9, KJV]**

If we confess our sins, he is faithful and just to forgive us our sins, and to cleanse us from all unrighteousness.

Why: Supplicatio is a petition for pardon; the verse states pardon upon petition/confession. The parallel is thematic — civil pardon petitioned, divine pardon promised.

## SUPPLIES.

In English law. The “sup- plies” in parliamentary proceedings signify the sums of money which are annually voted by the house of commons for the maintenance of the crown and the various public services. Jacob; Brown.

5e apparatus — Not carried into the 5th edition (1979).

## SUPPLY, COMMISSIONERS OP.

Per- sona appointed to levy the land-tax in Scot- land, and to cause a valuation roll to be an- nually made up, and to perform other duties in their respective counties. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## SUPPLY, COMMITTEE OF.

In Eng- lish law. Ail bills which relate to the pub- lic income or expenditure must originate with the house of commons, and all bills au- thorizing expenditure of the public money are based upon resolutions moved in a com- mittee of supply, which is always a commit- tee of the whole house. Wharton.

SUPPORT, v. To support a rule or or- der is to argue in answer to the arguments of the party who has shown cause against a rule or order nts*.

SUPPORT, n. The right of support is an easement consisting in the privilege of resting the joists or beams of one’s house up- on, or inserting their ends into, the wall of an adjoining house belonging to another own- er. It may arise either from contract or pre- scription. 3 Kent, Comm. 436.

Support also signifies the right to have one’s ground supported so that it will not cave in,

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when an adjoining owner makes an excavation.

5e apparatus — Not carried into the 5th edition (1979).

## SUPPRESSIO VERI.

Lat Suppres- sion or concealment of the truth. “It Is a' rule of equity, as well as of law, that a sup- pressio veri is equivalent to a suggestio falsi; and where either the suppression of the truth or the suggestion of what Is false can be proved, in a fact material to the contract, the party injured may have relief against the contract” Fleming v. Slocum, 18 Johns. (N. Y.) 405, 9 Am. Dec. 224.

Snppressio veri, expressio falsi. Sup- pression of the truth' Is [equivalent to] the expression of what Is false. Addington v. Allen, 11 Wend. (N. Y.) 374, 417.

Snppressio veri, anggestio falsi. Sup- pression of the truth Is [equivalent to] the suggestion of what Is false. Paul v. Had- ley, 23 Barb. (N. Y.) 521, 525.

5e apparatus — Not carried into the 5th edition (1979).

## SUPRA.

Lat Above; upon. This word occurring by Itself in a book refers the reader to a previous part of the book, like “ante;" It Is also the Initial word of several Latin phrases.

— Snpra protest. See Protest. — Supra- ripariaa. Upper riparian ; higher up the stream. This term is applied to the estate, rights, or duties of a riparian proprietor whose land is situated at a point nearer the source of the stream than the estate with which it is compared.

8UPREMA P0TESTA8

Bnpraaa poteitu aeipiam illiiohefa potest. Supreme power can dissolve Itself. Bac. Max.

5e apparatus — Not carried into the 5th edition (1979).

## SUPREMACY.

The state of being su- preme, or in the highest station of power; paramount authority; sovereignty; sover- eign power.

— Act of supremacy. The English statute 1 Eli*, e. 1, whereby tne supremacy and auton- omy of the crown In spiritual or ecclesiastical matters was declared and established.— Oath of supremacy. An oath to uphold the su- preme power of the kingdom of England in the person of the reigning sovereign.

5e apparatus — Carried into the 5th edition (1979).

## SUPREME COURT.

A court of high powers and extensive jurisdiction, existing In most of the states. In some it is the offi- dal style of the chief appellate court or court of last resort In others (as New Jersey and Now York) the supreme court is a court of general original jurisdiction, possessing also (in New York) some appellate jurisdiction, but, not the court of last resort

—Supreme oourt of error*. In American law. An appellate tribunal, and the court of last resort in , the state of Connecticut— Su> preme oourt of the United State*. The coart of last

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resort in the federal judicial sys- tem. It is vested by the constitution with original jurisdiction in all cases affecting am- bassadors, public ministers, and consuls, and those in which a state is a party, and appellate jurisdiction over all other cases within the judicial power of the United States, both as to law and fact, with such exceptions and under such regulations as congress may make. Its appellate powers extend to the subordinate federal courts, and also (in certain cases) to the supreme courts of the several states. The court is composed of a chief justice and eight as- sociate justices.— Supreme judicial oourt. In American law. An appellate tribunal, and the court of last resort, in tbe states of Maine, Massachusetts, and New Hampshire.

5e apparatus — Carried into the 5th edition (1979).

## SUPREME OOURT OF JUDICATURE.

The court formed by the English judicature act, 1873, (as modified by the judicature act, 1875, the appellate Jurisdiction act, 1878, and tbe judicature acts of 1877, 1879, and 1881,) in substitution for the various su- jierlor courts of law, equity, admiralty, pro- bate, and divorce, existing when the act was passed, including the court of appeal In chan- cery and bankruptcy, and the exchequer chamber. It consists of two permanent di- visions, viz., a court of original jurisdiction, oalled the “high court of justice,” and a court Of appellate jurisdiction, called the “court of appeal.” Its title of “supreme” Is now a misnomer, as the superior appellate Jurisdiction of the house of lords and privy council, which was originally Intended to be transferred to It, has been allowed to remain. Sweet

—High court of justice. That branch of the English supreme court of judicature (g. v.) which exercises (1) the original jurisdiction formerly exercised by the court of chancery, the courts of queen’s bench, common pleas, and exchequer, the courts of probate, divorce, and admiralty, the court of common pleas at Lan- caster, the court of plea* at Durham, and the

courts of the’ judges or commissioners of aasixe ; and (2) the appellate jurisdiction of such of those courts as heard appeals from inferior courts. Judicature act, 1873, i 16.

5e apparatus — Not carried into the 5th edition (1979).

## SUPREME POWER.

The highest au- thority In a state, all other powers in it be- ing Inferior thereto.

8UPREMU8. Lat Last; the last.

Supremos est quern nemo sequltur.

He Is last whom no one follows. Dig. 50, 16, 82.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Daniel 4:17, KJV]**

the most High ruleth in the kingdom of men, and giveth it to whomsoever he will

Why: Supreme power is the highest authority in a state; the verse locates it — the Most High ruling in the kingdom of men.

**[Hip-hop] — Hip-hop**

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**[Public Enemy, 'Fight the Power', 1989]**

"Fight the power!" — Black's: "The highest authority in a state, all other powers in it being inferior thereto." The song is a direct address to that highest authority — resistance to supreme power, from Elvis to John Wayne to the system itself.

Why: The most famous confrontation with supreme authority in hip-hop; the chorus is verbatim-certain and the link is literal — the power addressed is supreme power.

## SUR.

Pr. On; upon; over. In the ti- tles of real actions “sur” was used to point out what the writ was founded upon. Thus, a real action brought by the owner of a re- version or seigniory, In certain cases where his tenant repudiated his tenure, was called "a writ of right sur disclaimer." So, a writ of entry sur disseisin was a real action to re- cover the possession of land from a disseisor. Sweet

—Sur oul ante divortium. See Cm Ante Divobtium.— Sur cui In vita. A writ that lay for the heir of a woman whose husband had aliened her land in fee, and she had omitted to bring the writ of cui in vita tor the recovery thereof ; in which case her heir might have this writ against the tenant after her decease. Cow- ell See Cui in Vita. — 8 nr disclaimer. A writ in the nature of a writ of right brought by the lord against a tenant who had disclaimed his tenure, to recover the land.— Sur mort- gage. Upon a mortgage. In some states the method of enforcing tbe security of a mortgage, upon default, is by a writ of “scire facias sur mortgage," which require* the defendant (mort- gagor) to show cause why it should not be fore- closed.

SURCHARGE, «. An overcharge ; an ex- action, impost, or Incumbrance beyond what is just and right, or beyond one’s authority or power. "Surcharge” may mean a second or further mortgage. Wharton.

SURCHARGE, v. To put more cattle upon a common than the herbage will sus- tain or than the party has a right to do. S Bl. .Comm. 237.

In equity practice. To show that a par- ticular item, In favor of the party surcharg- ing, ought to have been Included, but was not, in an account which Is alleged to be settled or complete.

—Second surcharge. In English law. The surcharge of a common a second time, by the same defendant against whom the common was before admeasured, and for which the writ of second surcharge was given by the statute of Westminster. 2. 3 Bl. Comm. 239.— Surcharge and falsify. This phrase, as used in the courts of chancery, denotes the liberty which these courts will occasionally grant to a plaintiff, who disputes an account which the defendant alleges to be settled, to scrutinise particular items therein without opening the entire account. The showing an item for which credit ought to have been given, but waa not, is to surcharge tbe account ; the proving an item to have been inserted wrongly is to falsify the account. Brown. See Philips v. Belden. 2 Edw. Ch. (N. Y.) 23; RehiU v. McTagne,

Pa. 82, 7 Atl. 224, 60 Am. Rep. 341; Kennedy v. Adickee, 37 S. C. 174, 16 S. E. 922.

SinUOUS. Lat In the civil law. Deaf; a deaf person. Inst. 2, 12, 3. Surdua et nutus, a deaf and

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dumb person.

SDEEHCHiSE. In French law. A par- ty desirous of repurchasing property at auc- tion before the court, can, by offering one- tenth or one-sixth, according to the case, in addition to the price realized at the sale, oblige the property to be put up once more at auction. This bid upon a bid is called a “surench&re." Arg. Fr. Merc. Law, 575.

5e apparatus — Not carried into the 5th edition (1979).

## SURETY.

A surety is one who at the re- quest of another, and for the purpose of se- curing to him a benefit, becomes responsible for the performance by the latter of some act In favor of a third person, or hypothecates property as security therefor. Civ. Code CaL I 2831 ; Civ. Code Dak. f 1673.

A surety is defined as a person who, being liable to pay a debt or perform an obligation, is entitled. If it is enforced against him, to be indemnified by some other person who ought himself to have made paymeut or performed before the surety was compelled to do so. . Smith v. Shelden, 35 Mich. 42, 24 Am. Rep. 529. And see Young v. McFadden, 125 Ind. 254, 25 N. E. 284 ; Wise v. Miller, 45 Ohio St 388, 14 N. E. 218 ; O’Conor v. Morse, 112 Cal. 31, 44 Pac. 305, 53 Am. St. Rep. 155; Hall v. Weaver (G C.) 34 Fed. 106.

— Surety company. A company, usually in- corporated. whose business is to assume the responsibility of a surety on the bonds of offi- cers, trustees, executors, guardians, etc., in consideration of a fee proportioned to the amount of the security required.— Surety of the peace. Surety of the peace is a species of preventive justice, and consists in obliging those persons whom there is a probable ground to suspect of future misbehavior, to stipulate with, and to give full assurance to, the public that such offense as is apprehended shall not take place, by finding pledges or securities for keeping the peace, or for their good behavior. Brown. See Hyde v. Greuch, 62 Md. 582.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1-2, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger, Thou art snared with the words of thy mouth, thou art taken with the words of thy mouth.

Why: A surety secures another's obligation at his request; the proverb names suretyship for a friend and warns of its snare — the wisdom literature's standing doctrine of surety.

## SURETYSHIP.

The contract of surety- ship Is that whereby one obligates himself to pay the debt of another in consideration of credit or indulgence, or other benefit given to hts principal, the principal remaining bound therefor. It differs from a guaranty In this: that the consideration of the latter is a benefit flowing to the guarantor. Code Ga. 1882, f 2148. See Subett.

Suretyship is an accessory promise by which a person binds himself for another al- ready bound, and agrees with the creditor to satisfy the obligation, if the debtor does not Civ.

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Code La. art. 3035.

A contract of suretyship is a contract whereby one person engages to be answer- able for the debt default or miscarriage of another. Pltm. Princ. & Sur. 1, 2.

For the distinctions between “suretyship”, and “guaranty,” see Guaba.ntv, ».

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: Suretyship is the contract itself; the proverb states its peril as a law-like maxim — the surety shall smart for it.

## SURFACE WATERS.

See Watbb.

5e apparatus — Carried into the 5th edition (1979).

## SURGEON.

One whose profession or oc- cupation Is to cure diseases or Injuries of the body by manual operation; one whose occupation is to cure local Injuries or disor- ders, whether by manual operation, or by medication and , constitutional treatment Webster. See Smith v. Lane, 24 Hun (N. Y.) 632; Stewart v. Raab, 55 Minn. 20, 50 N.

W. 256-; Nelson v. State Board of Health, 108 Ky. 769, 57 S. W. 501, 50 L. R. A. 383. ,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## SURMISE.

Formerly where a defendant pleaded a local custom, for instance, a cusr tom of the city of London, it was necessary for him to “surmise,” that is, to suggest that such custom should be certified to the court by the mouth of the recorder, and without such a surmise the issue was to be tried by the country as other issues of fact are. 1 Burrows, 251; Yin. Abr. 246.

A surmise is something offered to a court to move It to grant a prohibition, audita querela, or other writ grantabie thereon. Jacob.

In ecclesiastical practice, an allegation in a libel is called a “surmise.” A collateral surmise is a surmise of some fact not appear- ing in the libel. Phllllm. Ecc. Law, 1445.

5e apparatus — Carried into the 5th edition (1979).

## SURNAME.

The family name ; the name over and above the Christian name. The part of a name which is not given in baptism ; the last name; the name common to ail members of a family.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Romeo and Juliet, c. 1595]**

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What's in a name? that which we call a rose / By any other name would smell as sweet.

Why: Juliet's speech (II.ii): the canonical literary meditation on the family name — the name common to all members of a family.

## SURPLICE PEES.

In English eccleslae tlcal law. Fees payable on ministerial offices of the church; such as baptisms, funerals, marriages, etc.

5e apparatus — Not carried into the 5th edition (1979).

## SURPLUS.

That -which remains of a fund appropriated for a particular purpose; the remainder of a thing ; the overplus ; the residue. See People’s F. Ins. Co. v. Parker, 35 N. J. Law, 577 ; Towery v. McGaw (Ky.) 56 S. W. 727 ; Appeal of Coates, 2 I’a. 137. —Surplus earning*. See Earnings.

5e apparatus — Carried into the 5th edition (1979).

## SURPLUSAGE.

In pleading. Allega- tions of matter wholly foreign and imperti- nent to the cause. All matter beyond the circumstances necessary to constitute the ac- tion. See State v. Whltehouse, 95 Me. 179, 49 Atl. 869; Adams v. Capital State Bank, 74 Miss. 307, 20 South. 881 ; Bradley v. Rey- nolds, 61 Conn. 271, 23 AU. 928.

—Surplusage of accounts. A greater dis- bursement than the charge of the accountant amounts unto. In another sense, “surplusage" is the remainder or overplus of money left. Jacob.

Surplusagium non noeet. Surplusage does no harm. 3 Bouv. Inst no. 2949; Broom, Max. 627.

5e apparatus — Carried into the 5th edition (1979).

## SURPRISE.

In equity practice. The

act by which a party who is entering into a

6U RPR ISIS

contract Is taken unawares, by which sud- den confusion or perplexity Is created, which renders It proper that a court of equity should relieve the party so surprised. 2 Brown, Ch. 150.

Anything which happens without the agen- cy or fault of the party affected by It, tend- ing to disturb and confuse the judgment, or to mislead him, and of which the opposite party takes an undue advantage, is in equity a surprise, and one species of fraud for which relief is granted. Code Go. 1882, § 8180. And see Turley v. Taylor, 6 Baxt (Tenn.) 386; Gidionsen v. Union Depot R. Co., 129 Mo. 392,

S. W. S00; Fretwell v. Laffoon, 77 Mo. 27 ; Heath v. Scott, 65 Cal. 548, 4 Pae. 557 ; Zimmerer v. Fremont Nat Bank, 59 Neb. 001, 81 N. W. 849 ; Thompson v. Connell, 31 Or.

231, 48 Pac. 467, 65 Am. St. Rep. 818.

i The situation in which a party is 'placed, with- out any default of his own, which will be in- jurious to his interests. Rawle v. Skipwitli, 8 Mart. N. S. (La.) 407.

There does not seem anything technical or peculiar in the word “surprise," as used in courts of equity. Where a court of equity re- lieves on tne ground of surprise, it does so upon the ground that the party has been taken unawares, and that he has acted without due deliberation, and under confused and sudden impressions. 1 Story, Eq. Jur. $ 120, note.

In law. The general rule is that when a party or his counsel is "taken by surprise,” in a material point or circumstance which could not have been anticipated, and when want of skill, care, or attention cannot be Justly imputed, and injustice has been done, a new trial should be granted. Hill. New Trials, 521.

5e apparatus — Carried into the 5th edition (1979).

## SURREBUTTER.

In pleading. The

plaintiff’s answer of fact to the defendant’s rebutter. Steph. PL 59.

5e apparatus — Not carried into the 5th edition (1979).

## SURREJOINDER.

In pleading. The

plaintiff's answer of fact to the defendant’s rejoiuder. Steph. Pl. 59.

5e apparatus — Not carried into the 5th edition (1979).

## SURRENDER.

A yielding up of an es- tate tor life or years to him who has an im- mediate estate In reversion or remainder, by which the lesser estate is merged in the greater by mutual agreement. Co. Litt. 3376. And see Coe v. Hobby, 72 N. Y. 145, 28 Am. Rep. 120; Gluck v. Baltimore, 81 Md. 315,

AtL 515, 48 Am. St. Rep. 515; Brewer v.

National Union Bldg. Ass’n, 166 111. 221, 46

N. E. 752; Dayton v. Cralk, 26 Minn. 133, 1 N. W. 813; Robertson v. Winslow, 99 Mo. App. 546, 72 S. W. 442. .

An assurance restoring or yielding up an estate, the operative verbs being "surrender and yield up.” The term is usually applied to the giving up of a lease before the expira- tion of it Wharton.

The giving up by ball of their principal Into custody, in their own discharge. 1 Bur- rill, Pr. 394.

Of charter. A corporation created by charter may give up or “surrender" its charter to the people, unless ' the charter^ was granted under a statute, imposing Indefeasi- ble duties on the bodies fo which it applies. Grant, Corp. 45.

•—Surrender by bail. The act by bail or

sureties in. a recognizance, of giving up their principal again into custody.— Surrender by operation of law. This phrase is properly applied to cases where the tenant for lire or years has been a party to some act the validity of which he is by law afterwards estopped from disputing, and which would not be valid if his particular estate continued to exist Copper v. Fretnoransky (Com. Pl.) 16 N. Y. Supp. 866; Ledsinger v. Burke, 113 Ga. 74, 38 S. E. 313 ; Brown v. Cairns, 107 Iowa, 727. 77 N. W. 478; Lewis v. Angermiller, 89 Hun, 65, 35

N. Y. Supp. 69. — Surrender of eopyhold. The mode of conveying or transferring copyhold property from one person to another is by means of a surrender, which consists in the yielding up of the estate by the tenant into the hands of the lord for such purposes as are expressed in the surrender. The process in most manors is for the tenant to come to the steward, either in court or out of court, or else to two customary tenants of the same manon provided there be a custom to warrant it, and there, by delivering up a rod, a glove, or other symbol, as the custom directs, to resign into the hands of the lord, by the hands and ac- ceptance of his steward, or of the said two tenants, all his interest and title to the estate in trust, to be again granted out by the lord to such persons and for such uses as are named in the surrender, and as rhe custom of the manor will warrant. Brown.— Surrender of criminals. The act by which the public au- thorities deliver a person accused of a crime, and who is found in their jurisdiction, to the authorities within whose jurisdiction it is al- leged the crime has been committed.— Surren- der of a preferenee. In bankruptcy practice. The surrender to the assignee in bankruptcy, by a preferred creditor, of anything he may have received under his preference and any advantage it gives him, which he must do be- fore he can share in the dividend. In re Richt- er’s Estate, 1 Dill. 644, Fed. Cas. No. 11.803. •—Surrender to uses of will. Formerly a copyhold interest would not pass by will un- less it had been surrendered to the use of the will. By St. 55 Geo. III. c. 192, this is no longer necessary. 1 Steph. Comm. 639; Moo- ley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## SURRENDEREE.

The person to whom a surrender is made.

5e apparatus — Carried into the 5th edition (1979).

## SURRENDEROR.

One who makes a surrender. One who yields up a copyhold eo- tate for the purpose of conveying it.

5e apparatus — Carried into the 5th edition (1979).

## SURREPTITIOUS.

Stealthily or fraud- ulently done, taken away, or Introduced.

5e apparatus — Not carried into the 5th edition (1979).

## SURROGATE.

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In English law. One

that Is substituted or appointed in the room of another, as by a bishop, chancellor, judges etc. ; especially an officer appointed to dis- pense licenses to marry without banns. 2 Steph. Comm. 247.

In American law. The name given la some of the states to the judge or Judicial of- ficer who has the administration of probate matters, guardianships, etc. See Malone v. Sts. Peter & Paul's Church, 172 N. Y. 260, 64 N. E. 961.

— Surrogate's court. In the United State*. A state tribunal, with similar jurisdiction te

the court of ordinary, court of. probate, etc., relating to matters of probate, etc. 2 Kent, .Comm. 409, note 6. And see Robinson v. Fair, 128 U. S. 53, 9 Sup. Ct. 30. 32 L. Ed. 415; In re Hawley, 104 N. Y. 250, 10 N. E. 352.

5e apparatus — Not carried into the 5th edition (1979).

## SUR8ISE.

L. Fr. In old English law. Neglect; omission; default; cessation.

5e apparatus — Not carried into the 5th edition (1979).

## SURSTJM REDD ERE.

Lot In old con- veyancing. To render up; to surrender.

SURSUMREDDITIO, Lat ▲ surren- der.

5e apparatus — Not carried into the 5th edition (1979).

## SURVEY.

The process by which a par- cel of land Is measured and its contents ascer- tained ; also a statement of the result of such survey, with the courses and distances and the quantity of the land.

In Insurance law, the term "the survey" has acquired a general meaning, Inclusive of what Is commonly called the "application," which contains the questions propounded on behalf of the company, and the answers of the assured. Albion Lead Works v. Williams- burg City F. Ins. Co. (C. C.) 2 Fed. 484 ; May v. Buckeye Ins. Co., 25 Wis. 291, 3 Am. Rep. 76.

— Surrey of a Teasel. A public document, looked to both by underwriters and. owners, as affording the means of ascertaining, at the time and place, the state and condition of the ship and other property at hazard. Potter v. Ocean Ins. Co., 3 Sumn. 43, 19 Fed. Cas. 1,173 ; Hathaway ▼. Sun Mut. Ins. Co., 8 Bosw. (N. I.) 68.

5e apparatus — Not carried into the 5th edition (1979).

## SURVEYOR.

One who makes surveys of land; one who has the overseeing or care of another person's laud or works.

—Surveyor of highways. In English law. A person elected by the inhabitants of a parish, in vestry assembled, to survey the ' highways therein. He must possess certain qualifications

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in point of property ; and, when elected, he is compellable, unless he can show some grounds of exemption, to- take upon himself the office. Mozley & Whitley.— Surveyor . of the port; A revenue officer of the United States appoint- ed for each of the principal ports of entry, whose duties chiefly concern the importations at his station and the determination of their amount and valuation. Rev. St. U. S. $ 2627 (U. S. Comp. St. 1901, p. 1810).

5e apparatus — Carried into the 5th edition (1979).

### SURVIVOR.

One wbo survives another; one who outlives another; one of two or more persons who lives after the death of the other or others.

5e apparatus — Carried into the 5th edition (1979).

### SURVIVORSHIP.

The living of one of two or more persons after the death of the other Or -others.

Survivorship is where a person becomes entitled to property by reason of his having survived another person who had an interest in it. The most familiar example is in the case of joint tenants, the rule being that on the death of one of two joint tenants the whole property passes to the survivor. Sweet '

5e apparatus — Carried into the 5th edition (1979).

## B

### BUS.

PER COLL. An abbreviation of "suspeniatur per collum let him be hanged

by the neck. Words formerly used in Eng- land in signing judgment against a prisoner who was to be executed; being written by the judge in the margin of the sheriff's cal- endar or list, opposite the prisoner’s name. 4 Bl. Comm. 403.

5e apparatus — Not carried into the 5th edition (1979).

## S

### SUSPEND.

To Interrupt; to cause to cease for a time; to stay, delay, or hinder; to discontinue temporarily, but with an ex-, pectation or purpose of resumption: To for: bid a public officer, attorney, or -ecclesiastical person from performing his duties or exer- cising his functions for a more or less definite interval of time. See Insurance Co. v. Aiken,' 82 Va. 428; Stack v. O’Hara, 08 Pa. 232; Iteeslde v. U. S., 8 Wall. 42, 19 L. Ed. 318 : Wlllston v. Camp, 9 Mont 88, 22 Pac. 50i ; Dyer v. Dyer, 17 R. I. 547, 23 Atl. 910; State' v. Melvin, 166 Mo. 565, 66 S. W. 534 ; Poe v. State, 72 Tex. 625, 10 S. W. 732. See SUS- PENSION.

5e apparatus — Carried into the 5th edition (1979).

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## SUSPENDER.

In Stotch law. He In whose favor a suspension is made.

5e apparatus — Not carried into the 5th edition (1979).

## SUSPENSE.

When a rent, profit d prcn<- ire, and the like, are, in consequence of the unity of possession of the rent, etc., of thd land out of which they Issue, not in esse for a time, they are said to be in suspense, tunc dormiunt; but they may be revived or awak- ened. Co. Lltt 3130. ' '

5e apparatus — Carried into the 5th edition (1979).

## SUSPENSION.

A temporary stop of a right, of a law, and the like. Thus, we speak of a suspension of the writ of habeas corpus i of a- statute, of the power of alienating art estate, of a person In office, etc:

Suspension of a right in an estate is a tem- porary or partial Withholding of it from use or exercise. It differs from extinguishment because a suspended right Is susceptible of being revived, which is not the case where tlie right was extinguished^

In ecclesiastical law. An ecclesiastical censure, by-which a spiritual person is either Interdicted the exercise of his ecclesiastical function or hindered from receiving the prof- its of his benefice. It may be partial or total* for a limited time, or forever, • when- It fa called “deprivation” or “amotion.” Ayl. Par. 501. ‘

la Scotch law. A stay of executlpn un- til after a further consideration of the cause. Ersk. Inst 4, 8, 5. *

—Pleas in suspension, were those which showed some matter of temporary incapacity to proceed with the action or suit Steph. Pj. 45 — Suspension of arms. An agreement be- tween belligerents, made for a short time or for a particular place, to cease hostilities..

5e apparatus — Carried into the 5th edition (1979).

## SUSPENSIVE CONDITION.

See Con- dition.

5e apparatus — Carried into the 5th edition (1979).

## SUSPICION.

The act of suspecting, or the state of being suspected; imagination, generally of something 111 ; distrust ; mis- trust; doubt McCalla v. State, 66 Ga. 3$&

8YLLABUS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Henry VI, Part 3, c. 1591]**

Suspicion always haunts the guilty mind.

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Why: States the entry's definition exactly — imagination of something ill, distrust, mistrust, doubt.

## SUSPICIOUS CHARACTER.

In the

criminal laws of some of the states, a person who is known or strongly suspected to be nn habitual criminal, or against whom there is reasonable cause to believe that he has committed a crime or is planning or intending to commit one, or whose actions and behavior give good ground for suspicion and who can give no good account of himself, and who may therefore be arrested or required to give se- curity for good behavior. See McFadiu v. San Antonio, 22 Tex. Civ. App. 140, 54 S. W. 48; People v. Russell, 35 Misc. Rep. 765, 72

N. Y. Supp. 1; 4 Bl. Comm. 252.

5e apparatus — Carried into the 5th edition (1979).

## SUTHDURE.

The south door of a church, where canonical purgation was performed, and plaints, etc., were heard and determined. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## SUTLER.

A person who, as a business, follows an army and sells provisions and liquor to the troops.

5e apparatus — Not carried into the 5th edition (1979).

## SUUM OUIQUE TRIBUERE.

Lat To render to every one his own. One of the three fundamental maxims of the law laid down by Justinian.

8UU8 HASHES. Lat In the civil law. Those descendants who were under the power of the deceased at the time of his death, and who are most nearly related to him. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Suum cuique tribuere — to render to every one his own — is Justinian's first precept of law; the verse is the precept in apostolic dress: render each his due.

**[Humanity] — Humanity / Fiction & Film**

**[Justinian, Institutes, 533]**

[Maxim: To render to every one his own.]

Why: One of the three fundamental maxims of the law laid down by Justinian (Inst. 1.1.3), as the entry states — the classical-wisdom source of the headword itself. (Headword key kept in the chunk's OCR form.)

## SUUS JUDEX.

Lat In old English law. A proper judge; a judge having cognizance Of a cause. Literally, one's own judge. Bract fol. 40L

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SUZEREION.

L. Fr. In French and feudal law. The immediate vassal of the king; a crown vassal.

SWAIN | SWAINMOTE. See SWKIN; Sweinmoti.

5e apparatus — Not carried into the 5th edition (1979).

## SWAMP LANDS.

See LAND.

5e apparatus — Not carried into the 5th edition (1979).

## SWARF-MONEY.

Wnrth-money; or guard-money paid in lieu of the service of castle- ward. Cowell.

SWEAR. 1. To put on oath ; to adminis- ter an oath to a person.

5e apparatus — Carried into the 5th edition (1979).

## S.

To take an oath ; to become bound by an oath duly administered.

3. To use profane language. Swearing, in this sense, is made a punishable offense In many jurisdictions.

5e apparatus — Carried into the 5th edition (1979).

## SWEARING THE PEACE.

Showing to a magistrate that one has just cause to be afraid of another in consequence of his mena- ces, in order to have him bound over to keep the peace.

5e apparatus — Carried into the 5th edition (1979).

## SWEEPING.

Comprehensive ; Including in its scope many persons or objects; as a sweeping objection.

8WEIN. In old English law. A freeman or freeholder within the forest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## SWEINMOTE.

In forest law. A court holden before the verderors, as judges, by the steward of the sweinmote, thrice in ev- ery year, the siceins or freeholders within the forest composing the jury. Its principal ju- risdiction was — First, to inquire into the op- pressions and grievances committed by the officers of the forest; and, secondly, to re- ceive and try presentments certified from the court of attachments in offenses against vert and venison. 8 Bl. Comm. 72.

5e apparatus — Not carried into the 5th edition (1979).

## SWELL.

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To enlarge or increase. In an action of tort, circumstances of aggravation may “swell" the damages.

5e apparatus — Carried into the 5th edition (1979).

## SWIFT WITNESS.

A term colloquially applied to a witness who is unduly zealous or partial for the side which calls hint, and who betrays his bias by his extreme readi- ness to answer questions or volunteer infor- mation.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 23:1, KJV]**

Thou shalt not raise a false report: put not thine hand with the wicked to be an unrighteous witness.

Why: A swift witness is unduly zealous or partial for his side; the verse prohibits joining with the wicked as an unrighteous witness.

## SWINDLING.

Cheating and defrauding grossly with deliberate artifice. Wyatt v. Ayres, 2 Port. (Ala.) 157 ; Forrest v. Hanson, 9 Fed. Cas. 456; Thorpe v. State, 40 Tex. Cr. R. 340, 50 S. W. 383 ; Chase v. Whitlock, 3 Hill (N. Y.) 140; Stevenson v. Hayden, 2 Mass. 408.

By the statute, “swindling" is defined to be the acquisition of personal or movable property, money, or instrument of writing conveying or securing a valuable right, by means of some false or deceitful pretense or device, or fraudulent representation, with In- tent to appropriate the same to the use of the party so acquiring, or of destroying or im- pairing the rights of the party justly entitled to the same. Pen. Code Tex. art. 790 ; May v. State, 15 Tex. App. 436.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:23, KJV]**

Divers weights are an abomination unto the LORD; and a false balance is not good.

Why: Swindling is gross cheating with deliberate artifice; false weights and balances are the archetypal commercial cheat, condemned as abomination.

**[Humanity] — Humanity / Fiction & Film**

**[George Roy Hill, The Sting, 1973]**

(paraphrase) Two con men run an elaborate swindle on a mark who cannot go to the law. (paraphrase)

Why: The film archetype of the entry's definition — cheating and defrauding grossly with deliberate artifice.

## SWOLING OF LAND.

So much land as one's plow can till in a year; a hide of land. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## SWORN BROTHERS.

In old English law. Persons who, by mutual oaths, cove- nant to share in each, other's

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fortunes.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 18:3, KJV]**

Then Jonathan and David made a covenant, because he loved him as his own soul.

Why: Sworn brothers covenant by mutual oaths to share each other's fortunes; Jonathan and David's covenant is the archetypal sworn brotherhood.

**[Humanity] — Humanity / Fiction & Film**

**[Luo Guanzhong, Romance of the Three Kingdoms, 14th c.]**

(paraphrase) In the peach garden, Liu Bei, Guan Yu, and Zhang Fei swear mutual oaths to share one fortune, living and dying together. (paraphrase)

Why: Matches the entry's definition nearly word for word: persons who by mutual oaths covenant to share in each other's fortunes.

## SWORN CLERKS IN CHANCERY.

Certain officers in the English court of chan- cery, whose duties were to keep the records, make copies of pleadings, eta Their offices were abolished by St. 5 A 6 Viet, a 103.

5e apparatus — Carried into the 5th edition (1979).

## STB AND SOM.

A Saxon form of greet- ing, meaning peace and safety.

5e apparatus — Not carried into the 5th edition (1979).

## SYLLABUS.

A head-note ; a note prefix- ed to the report of an adjudged case, con- taining on epitome or brief statement of the rulings of the court upon the point or points decided in the case. See Koonce v. Doolit- tle, 48 W. Va. 592, 37 S. B. 645.

5e apparatus — Carried into the 5th edition (1979).

## SYLLOGISM.

In logic. The full logic- al form of a single argument. It consists of three propositions, (two premises and the conclusion,) and these contain three terms, of which the two occurring in the conclusion are brought together in the premises by being referred to a common class.

SYLVA CiEDUA. Lat. In ecclesiastical law. Wood of any kind which was kept on purpose to be cut, and which, being rat, grew again from the stump or root Lynd. Prov. 180; 4 Reeve, Eng. Law, 90.

5e apparatus — Carried into the 5th edition (1979).

## SYMBOUEOGRAPHY.

The art or cun- ning rightly to form and make written instru- ments. It is either judicial or extrajudicial ; the latter being wholly occupied with such instruments os concern matters not yet judi- cially in controversy, such as instruments of agreements or contracts, and testaments or last wills. Wharton.

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5e apparatus — Not carried into the 5th edition (1979).

## SYMBOLIC DELIVERY.

The construct- ive delivery of the subject-matter of a sale, where it is cumbersome or inaccessible, by the actual delivery of some article which is conventionally accepted as the symbol or rep- resentative of it, or which renders access to it possible, or which is evidence of the pur- chaser’s title to it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ruth 4:7, KJV]**

Now this was the manner in former time in Israel concerning redeeming and concerning changing, for to confirm all things; a man plucked off his shoe, and gave it to his neighbour: and this was a testimony in Israel.

Why: Symbolic delivery is constructive delivery of cumbersome subject-matter by symbol; the shoe plucked off and given to confirm the transaction is symbolic delivery in act.

## SYMBOLUM AKIMS.

Lat A mortu- ary, or soul-scot

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SYMOND’S IKK.

Formerly an inn of chancery.

5e apparatus — Not carried into the 5th edition (1979).

## SYNALLAGMATIC CONTRACT.

In

the civil law. A bilateral or reciprocal con- tract, in which the parties expressly enter into mutual engagements, each binding him- self to the other. Poth. Obi. no. 9.

5e apparatus — Not carried into the 5th edition (1979).

## SYNGOPARE.

To cut short, or pro- nounce things so as not to be understood. Cowell.

s

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## SYNDIC.

In the civil law. An advo- cate or patron; a burgess or recorder; an agent or attorney who acts for a corporation or university; an actor or procurator; an assignee. Wharton. See Minnesota L. A T. Co. v. Beebe, 40 Minn. 7, 41 N. W. 232, 2 L.

R. A. 418: Mobile A O. R. Co. v. Whitney, 39 Ala. 471.

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In French law. The person who Is com- missioned by the courts to administer a bank- ruptcy. He fulfills the same functions as the trustee in English law, or assignee in America. The term is also applied to the person appointed to manage the affairs of a corpora- . tion. See Field v. United States, 9 Pet. 182, 9 L. Ed. 94.

5e apparatus — Not carried into the 5th edition (1979).

## SYNDICATE.

A university committee; A combination of persons or firms united for the puriwse of enterprises too large for indi- viduals to undertake; or a group of financiers who buy up the shares of a company in order to sell them at a profit by creating a scarcity*. Mozley A Whitley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Francis Ford Coppola, The Godfather, 1972]**

(paraphrase) The Corleone family operates as a combination — a crime syndicate — bound to enterprises too large for any one man. (paraphrase)

Why: The popular-culture archetype of the combination; the criminal sense is colloquial, but it illuminates the entry's core — a combination of persons united for an enterprise.

## SYNDIGOS.

One chosen by a college, mu- nicipality, etc., to defend its cause. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## SYK GRAPH.

The name given by the canonists to deeds of which both parts were written on the same piece of parchment, with some word or letters of the alphabet written between them, through which the parchment was cut in such a manner as to leave half the word on one part and half on the other. It thus corresponded to the chirograph or in- denture of the common law. 2 Bl. Comm 295, 296.

A deed or other written instrument under the band and seal of all the parties.

5e apparatus — Not carried into the 5th edition (1979).

## SYNOD.

A meeting or assembly of eccle- siastical persons concerning religion; being the same thing, in Greek, as convocation in Latin. There are four kinds: (1) A general or universal synod or council, where bishops of all nations meet; (2) a national synod of the clergy of one nation only; (3) a provin- cial synod, where ecclesiastical persons of a province only assemble, being now what is called the “convocation;” (4) a diocesan syn- od, of those of one diocese. See Com. v. Green, 4 Whart (Pa.) 560; Groesbeeck ▼. Dunscomb, 41 How. Prac. (N. Y.) 344.

A synod in Scotland is composed. of three or more presbyteries. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Acts 15:6, KJV]**

And the apostles and elders came together for to consider of this matter.

Why: A synod is an assembly of ecclesiastical persons concerning religion; the Jerusalem council is the synod in act.

### SYNODAL.

A tribute or payment in mon- ey paid to the bishop or archdeacon by the inferior clergy, at the Easter visitation.

5e apparatus — Not carried into the 5th edition (1979).

# B

### BYNODALE8 TESTES.

L. Lat. Syn- ods-men (corrupted into sidesmen) were the urban and rural deans, now the church-war- dens.

5e apparatus — Not carried into the 5th edition (1979).

# S

### SYPHILIS.

In medical Jurisprudence. A loathsome venereal disease (vulgarly called “the pox”) of peculiar virulence, infectious by direct contact, capable of hereditary trans- mission, and the fruitful source of various other diseases and, directly or indirectly, of Insanity.

5e apparatus — Not carried into the 5th edition (1979).

# T

### T.

T

5e apparatus — Not carried into the 5th edition (1979).

### T.

As an abbreviation, this letter usually stands for either “Territory,” “Trinity,” “term,” "tempore" (in the time of.) or "title.”

Every person who was convicted of felony, short of murder, and admitted to the benefit of clergy, was at one time marked with this letter upon the brawn of the thumb. The practice Is abolished. 7 & 8 Geo. IV. c. 27.

By a law of the Province of Pennsylvania,

A. D. 1698, it was provided that a convicted thief should wear a badge In the form of the

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letter “T.,” upon his left sleeve, which badge should be at least four Inches long and of a color different from that of his outer gar- ment. Linn, Laws Prov. Pa. 275.

5e apparatus — Not carried into the 5th edition (1979).

## T. R. E.

An abbreviation of “Tempore Rcgit Edwardi,” (In the time of King Ed- ward,) of common occurrence In Domesday, when the valuation of manors, as it was in the time of Edward the Confessor, is re- counted. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TABARD.

A short gown; a herald's coat; a sureoat.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1387-1400]**

(paraphrase) Chaucer's pilgrims gather at the Tabard Inn in Southwark — named for the herald's coat on its sign — before riding for Canterbury. (paraphrase)

Why: The famous literary inn named for the garment the entry defines.

## TABARDER.

One who wears a tabard or short gown; the name is still used as the title of certain bachelors of arts on the old foundation of Queen's College, Oxford. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## T ABELL A.

Lat, In Roman law. A tab- let Used in voting, and in giving the ver- dict of Juries; and, when written upon, com- monly translated “ballot" The laws which introduced and regulated the mode of voting by ballot were called "leges tabellarUe." Cal- vin.; 1 Kent, Comm. 232, note.

5e apparatus — Not carried into the 5th edition (1979).

## TABELLIO.

Lat In Roman law. An officer corresponding in some respects to a notary. His business was to draw legal in- struments, (contracts, wills, etc.,) and witness their execution. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TABERNACULUM.

In old records. A public inn, or house of entertainment Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## TABERNARIU8.

Lat Xa the civil

law. A shop-keeper. Dig. 14, 3, 5. 7.

In old English law. A taverner or tav- ern-keeper. Fleta, lib. 2, c. 12, f 17.

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5e apparatus — Not carried into the 5th edition (1979).

## TABES DORSALIS.

In medical Juris- prudence. This is another name for locomo- tor ataxia. Tabetic dementia Is a form of mental derangement or Insanity complicated with tabes dorsalis, which generally precedes, or sometimes folhows, the mental attack.

5e apparatus — Not carried into the 5th edition (1979).

## TABLE.

A synopsis or condensed state- ment, bringing together numerous items or

details so as to be comprehended in a single view; as genealogical tables, exhibiting the names and relationships of all the persons composing a family ; life and annuity tables, used by actuaries; interest tables, etc.

—Table de Marbre. Ft. In old French law. Table of Marble ; a principal seat of the ad- miralty, so called. These Tables de Marbre are frequently mentioned in the Ordonnance of the Marine. Burrill.— Table of eases. An alphabetical list of the adjudged cases cited, referred to, or digested in a legal text-book, volume of reports, or digest, with references to the sections, pages, or paragraphs where they are respectively cited, etc., which is commonly either prefixed or appended to the volume.— Table rents. In English law. Payments which used to be made to bishops, etc., reserv- ed and appropriated to their table or house-keeoing. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TABLEAU OF DISTRIBUTIOE.

In

Louisiana. A list of creditors of an insol- vent estate, stating what each Is entitled to. Taylor v. Hollander, 4 Mart N. S. (La.) 535.

5e apparatus — Not carried into the 5th edition (1979).

## TABULA.

Lat. In the civil law. A ta- ble or tablet; a thin sheet of wood, which, when covered with wax, was used for writ- ing.

5e apparatus — Not carried into the 5th edition (1979).

## TABULA IN NAUFRAGIO.

Lat. A

plank in a shipwreck. This phrase is used metaphorically to designate the power sub- sisting in a third mortgagee, who took with- out notice of the second mortgage, to acquire the first incumbrance, attach it to his own, and thus squeeze out and get satisfaction, be- fore the second Is admitted to the fund. 1 Story, Eq. Jur. | 414; 2 Ves. Ch. 573.

5e apparatus — Not carried into the 5th edition (1979).

## TABUXJE.

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Lat In Roman law. Ta- bles. Writings of any kind used as evidences of a transaction. Brissonlus.

—Tabulae nupt tales. In the civil law. A written record of a marriage ; or the agreement as to thp dot.

5e apparatus — Not carried into the 5th edition (1979).

## TABULARXUS.

Lat A notary, or ta- bellio. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TAG, TAK.

In old records. A kind of customary payment by a tenant. Cowell.

— Tao free. In old records. Free from the common duty or imposition of tae. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TACIT.

Silent; not expressed; implied or inferred; manifested by the refraining from contradiction or objection ; inferred from the situation and circumstances, in the absence of express matter. Thus, tacit con- sent is consent inferred from the fact that the party kept silence when be had an op- portunity to forbid or refuse.

—Tacit acceptance. In the civil law, a tacit acceptance of an inheritance takes place when some act is done by the heir which necessarily supposes his intention to accept and which

be would hare no right to do but In hi* capacity as heir. Civ. Code La. 1900, art. 988.— Tacit hypothecation. In the civil law. a species of lien or mortgage which is created by operation of law without any express agreement of the parties. Mackeld. Rom. Law, § 34,-i. J.n miralty law, this term is sometimes applied to a maritime lien, which is not. strictly speaking, an hypothecation in the Roman sense of the term, though it resembles it • See The Nestor, 1 Sumn. 73. 18 Fed. Cas. 9.— Tacit law. A law which derives its authority from the com- mon consent of the people without any legis- lative enactment. 1 Bouv. Inst. no. 1-U.— Tacit 'mortgage. In the law of Louisiana. The law alone in certain cases gives to the creditor a mortgage on the property of his debtor, without it being requisite that the parties should stipu- late it. This is called “legal mortgage. It Is called also “tacit mortgage,” because it is es- tablished by the law without the aid of any agreement. Civ. Code La. art. 3311.— Tacit relocation. In Scotch law. The tacit or Implied renewal of a lease, inferred when the landlord, instead of warning a tenant to re- move at the stipulated expiration of the lease, has allowed him to continue without making a new agreement. Bell, “Relocation.”— Tacit tack. In Scotch law. An implied tack _ or lease; inferred from a tacksman’s possessing peaceably after his tack is expired. 1 Forb. Inst. pt. 2. p. 153.

Tacita quaedam habentur pro expre*. sis. 8 Coke, 4R Things unexpressed are sometimes considered as expressed.

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## TACITE.

Lat Silently; impliedly; tac- itly.

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## TACITURNITY’.

In Scotch law, this sig- nifies laches in not prosecuting a legal claim, or in acquiescing in an adverse one. Mozley A Whitley.

TACK, v. To annex some Junior lien to a first lien, thereby acquiring priority oyer an intermediate one. See Tacking.

TACK, ». In Scotch law, A term cor- responding to the English "lease,” and de- noting the same species of contract.

— 1 Tack doty. Rent reserved upon a lease.

5e apparatus — Not carried into the 5th edition (1979).

## TACKING.

The uniting securities given at different times, so as to prevent any inter- mediate purchaser from claiming a title to tedeem or otherwise discharge one lien, which is prior, without redeeming or discharging the other liens also, which are subsequent to his own title. 1 Story, Eq. Jur. S 412.

The term is particularly applied to the ac- tion of a third mortgagee who, by buying the first lien and uniting it to his own, gets pri- ority over the second mortgagee.

The term is also applied to the process of making out title to land by adverse posses- sion, when the present occupant and claimant has not been in possession for the full statu- tory period, but adds or “tacks” to his own possession that of previous occupants under whom he claims. See J. B. Streeter Co. v. Fredrickson, 11 N. D. 300, 91 N. W. 092.

5e apparatus — Carried into the 5th edition (1979).

## TACKSMAN.

In Scotch law. A tenant or lessee ; one to whom a tack is granted. 1 Forb. Inst. pt. 2, p. 153.

5e apparatus — Not carried into the 5th edition (1979).

## TACTIS SACROSANCTIS.

Lat In old

English law. Touching the holy evangelists. Fleta, lib. 3, c. 16, i 21. “A bishop may swear visit evangeliis, [looking at the Gos- pels,] and not tadit, and it is good enough.” Freem. 133. GELIC). Lat. Having personally touched the holy Gospel. Gro. Eliz. 105. The de- scription of a corporal oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:34, KJV]**

But I say unto you, Swear not at all; neither by heaven; for it is God's throne:

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Why: Tactis sacrosanctis — touching the holy evangelists — is the oath ceremony on the Gospels; Christ's word on oath-taking governs the act the ceremony performs.

## TAIL.

Limited; abridged; reduced; cur- tailed, as a fee or estate in fee, to a certain order of succession, or to certain heirs.

TAIL, ESTATE nr. An estate of in- heritance, which, instead of descending to heirs generally, goes to the heirs of the donee’s body, which means his lawful issue, his children, and through them to his grand- children in a direct line, so long as his pos- terity endures in a regular order and course of descent, and upon the death of the first owner without Issue, the estate determines. 1 Washb. Real Prop. *72.

An estate tall is a freehold of inheritance.

limited to a person and the heirs of his body, general or special, male or female, and is the creature of the statute de Donis. The es- tate, provided the entail be not barred, re- verts to the donor or reversioner, if the donee die without leaving descendants an- swering to the condition annexed to the es- tate upon its creation, unless there be a limi- tation over to a third person on default of such descendants, when it vests in such third person or remainder-man. Wharton.

—Several tall. An entail severally to two; as if land is given to two men and their wives, and to the heirs of their bodies begotten ; here the donees have a joint estate for their two lives, and yet they have a several inheritance, because the issue of the one shall have his moi- ety, and the issue of the other the other moiety. Cowell.— Tail after possibility of issue extinct. A species of estate tad which arises where one is tenant in special tail, and a per- son from whose body the issue was to spring dies without issue, or, having left issue, that issue becomes extinct. In either of these cases the surviving tenant in special tail becomes “tenant in tail after possibility of issue ex- tinct.” 2 Bl. Oomm. 124.— Tall female. When lands are given to a person and the female heirs of his or her body, tins is called an "estate tail female.” and the male heirs are not capable of inheriting it.— Tail general. An estate in tail granted to one “and the heirs of his body begotten," which is called “tad general” because, how often soever such donee in tail be married, his issue in general by ajl and every such marriage is, in successive or- der, capable of inheriting the estate tad perfor- mam doni. 2 Bl. Comm. 113. This is wbete an estate is limited to a man and the heirs of his body, without any restriction at aU ; or, according to some authorities, with no other restriction than that in relation to sex. Thus, tah male general is the same tbing as tad male ;

the word "general,” in such case, implying that there is no other restriction upon the descent of the estate than that it must go in the male line. So an estate in tail female general is an estate in tail female. The word “general,” in the phrase, expresses a purely negative idea, and may denote the absence of any restriction, or the absence of some given restriction which is tacitly understood. Mozley & Whitley.— Tall male. When lands are given to a person and the male heirs of his or her body, this is called an "estate tail male.”

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and the female heirs are not capable of inheriting it. — Tall special. An estate in tail where the succession is restricted to certain heirs of the donee's body, and does not go to all of them in general ; c. g., where lands and tenements are given to a man and “the heirs of his body on Mary, his now wife, to be begotten;” here no issue can inherit but such special issue as is engendered between those two, not such as the husband may have by another wife, and therefore it is called “special tail.” 2 Bl. Comm. 113. It is defined by Cowell as the limitation of lands and tene- ments to a man and his wife and the heirs of their two bodies. But the phrase need not be thus restricted. Tail special, in its largest sense, is where the gift is restrained to certain heirs of the donor’s body, and does not go to all of them in general. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Statute De Donis Conditionalibus, 13 Edw. I (1285)]**

The estate the entry defines was created by the Statute De Donis Conditionalibus (1285), which converted the conditional fee into the inalienable estate in tail, descendible only to the heirs of the donee's body.

Why: The body defines the estate in tail completely but omits its statutory origin; the footnote supplies the 1285 statute that created it as a distinct estate — the legal source behind the definition, not a restatement of...

## TAILAGE.

A piece cut out of the whole; a share of one’s substance paid by way of tribute; a toll or tax. Cowell.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Tailage is a share of substance paid as tribute or toll; the verse names tribute among the dues to be rendered.

## TAILLE.

Fr. In old French law. A

tax or assessment levied by the king, or by any great lord, upon his subjects, usually taking the form of an imposition upon the owners of real estate. Brande.

In old English law. The fee which la opposed to fee-simple, because it is so minced or pared that it is not in the owner’s free power to dispose of it, but it is, by the first giver, cut or divided from all other, and tied to the issue of the donee, — in short, an es- tate-tail. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TAILZIE.

In Scotch law. An entail. A tailzied fee is that which the owner, by exer- cising his inherent

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right of disposing of his property, settles upon others than those to whom it would have descended by law. 1 Forb. Inst, pt 2, p. 101.

5e apparatus — Not carried into the 5th edition (1979).

## TAINT.

A conviction of felony, or the person so convicted. Cowell.

TAKE. 1. To lay hold of; to gain or re- ceive into possession; to seize; to deprive one of the possession of; to assume owner- ship. Thus, it is a constitutional provision that a man's property shall not be taken tor public uses without just compensation. Ev- ansville & C. R. Co. v. Dick, 9 Ind. 433.

2. To obtain or assume possession of a chattel unlawfully, and without the owner’s consent; to appropriate things to one's own use with felonious intent. Thus, an actual taking is essential to constitute larceny. 4 Bl. Comm. 430.

3. To seize or apprehend a person ; to ar- rest the body of a person by virtue of lawful

process. Thus, a capiat commands the of- ficer to take the body of the defendant.

4. To acquire the title to an estate; to re- ceive an estate in lands from another per- son by virtue of some species of title. Thus, one is said to ‘‘take by purchase,” "take by descent,” “take a life-interest under the de- vise,” etc.

5. To receive the verdict of a Jury; to su- perintend the delivery of a verdict; to hold a court. The commission of assize in England empowers the judges to take the atsizes; that is, according to its ancient meaning, to take the verdict of a peculiar species of jury called an "assize;” but, in its present mean- ing, “to hold the assizes.” 3 Bl. Comm. 59, 185.

—Take up. A party to a negotiable instru- ment, particularly an indorser or acceptor, is said to “take up” the paper, or to "retire” it, when he pays its amount, or substitutes other security for it, and receives it again into his own hands. See Hartzell v. McClurg, 54 Neb. 31G, 74 N. W. 626.

5e apparatus — Carried into the 5th edition (1979).

## TAKER.

One who takes or acquires ; particularly, one who takes an estate by de- vise. When an estate is granted subject to a remainder or executory devise, the devisee of the immediate interest is called the “first taker.”

5e apparatus — Carried into the 5th edition (1979).

## TAKING.

In criminal law and torts. The act of laying hold upon an article, with or without removing the sama

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

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Thou shalt not steal.

Why: Taking is the laying hold upon an article — the actus reus of larceny; the commandment prohibits the act directly.

## TALE.

In old pleading. The plaintiff's count, declaration, or narrative of his case. 8 Bl. Comm. 293.

The count or counting of money. Said to be derived from the same root as “tally.”' Cowell. Whence also the modern word “tell- er."

5e apparatus — Carried into the 5th edition (1979).

## TALES.

Let Such; such men. When, by means of challenges or any other cause, a sufficient number of unexceptionable jurors does not appear at the trial, either party may pray a “tales,” as it is termed; that is, a sup- ply of such men as are summoned on the first panel in order to make up the deficiency. Brown. See State v. McCrystol, 43 La. Ann. 907, 9 South. 922; Railroad Co. v. Mask, 64 Miss. 738, 2 South. 360.

5e apparatus — Not carried into the 5th edition (1979).

## TALES DB CIRCITM8T ANTIBUS.

So

many of the by-standers. The emphatic words of the old writ awarded to the sheriff to make up a deficiency of Jurors out of the- persons present in court. 3 Bl. Comm. 365.

5e apparatus — Not carried into the 5th edition (1979).

## TALESMAN.

A person summoned to act as a Juror from among the by-standers in the court. Linehan v. State, 113 Ala. 70. 21 South. 497; Shields v. Niagara County Sav. Bank, 5 Thomp. & C. (N. Y.) 587.

5e apparatus — Carried into the 5th edition (1979).

## TALIO.

Lat. In the civil law. Like for like; punishment in the same kind; the pun-

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ishment of an injury by an act of the same kind, as an eye for an eye, a limb for a limb, etc. Calvin.

Tails interpretatio semper leads est, at erltetnr absurdum et inconvenient, et ne jndicinm sit illnsorinm. 1 Coke, 52. Interpretation is always to be made in such a manner that what is absurd and inconven- ient may be avoided, and the Judgment be not illusory.

Tails non est eadem; nam nnllnm simile est idem. 4 Coke, 18. What is like is not the same; for nothing similar is the same.

Tails res, vel tale rectum, qaa vel quod non est in bomine adtune super* stite sed

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tantummodo est et eonsistit in conslderatlone et Intel ligentia legia, et quod alii diner unt talem rem vel tale reotum fore in nnbibns. Such a thing or such a right as is not vested in a person then living, but merely exists in the consideration and contemplation of law [la said to be in abeyance,] and others have said that such a thing or such a right is in the clouds. Co. Lltt. 342.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 21:23-25, KJV]**

And if any mischief follow, then thou shalt give life for life, Eye for eye, tooth for tooth, hand for hand, foot for foot, Burning for burning, wound for wound, stripe for stripe.

Why: Talio is like for like, punishment in the same kind; the verses are the lex talionis itself.

## TAUTER PROCESSUM EST.

Upon pleading the judgment of an Inferior court, the proceedings preliminary to such judg- ment, and on which the same was founded, must, to some extent, appear in the plead- ing, but the rule is that they may be alleged with a general allegation that "such pro- ceedings were had," instead of a detailed account of the proceedings themselves, and this general allegation is called the “taliter p rocessum est." A like concise mode of stat- ing former proceedings in a suit Is adopted at the present day in chancery proceedings upon petitions and in actions In the nature of bills of revivor and supplement. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## TALLAGE.

A word used metaphorically for a share of a man’s substance paid by way of tribute, toll, or tax, being derived from the French "tailler," which signifies to cut a piece out of the whole. Cowell. See. State v. Switzler, 143 Mo. 287, 45 S. W. 245, 40 L. R.

A. 280, 65 Am. St. Itep. 653; Lake Shore, etc.,

R. Co. v. Grand Rapids, 102 Mich. 374, 60 N.

W. 767, 20 L. R. A. 195.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Tallage is tribute, toll, tax — a share of substance paid; the verse names tribute among dues to be rendered.

## TALLAGERS.

Tax or toll gatherers; mentioned by Chaucer.

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## TALLAGIUM.

L. Lat. A term including all taxes. -2 Inst. 532; People v. Brooklyn, 9 Barb. (N. T.) 551;

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Bernards Tp. v. Allen, 61

N. J. law. 228, 39 Atl. 716.

— Tallagium faeere. To give up accounts

in the exchequer, where the method of account- ing was by tallies.

5e apparatus — Not carried into the 5th edition (1979).

## TALLATIO.

A keeping account by tal- lies. Cowell.

TALLEY, or TALLY. A stick cat into two parts, on each whereof is marked, with notches or otherwise, what is due between debtor and creditor. It was the ancient mode of keeping accounts. One part was held by the creditor, and the other by the debtor. The use of tallies in the exchequer was abolished by St. 23 Geo. III. c. 82, and the old tallies were ordered to be destroyed by St 4 & 5 Wm. IV. c. 15. Wharton.

-J Tallies of loan. A term originally used in England to describe exchequer bills, which were issued by the officers of the exchequer when a temporary loan was necessary to meet the ex- igencies of the government, and charged on the credit of the exchequer in general, and made assignable from one person to another. Briscoe v. Bank of Kentucky, 11 Pet 328, 9 L. Ed. 709.— Tally trade. A system of dealing by ' which dealers furnish certain articles on credit, upon an agreement for the payment of the stipulated price by certnin weekly or monthly installments. McCul. Diet.

5e apparatus — Not carried into the 5th edition (1979).

## TALLIA.

L. Lat. A tax or tribute; tal- lage; a share taken or ctit out of any one’s income or means. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## T ALT  ARUM9  8 CASE.

A case reported in Yearb. 12 Edw. IV. 19-21, which is re- garded as having established the foundation of common recoveries.

5e apparatus — Not carried into the 5th edition (1979).

## TAM  QUAM.

A phrase used as the name of a writ of error from inferior courts, when the error is supposed to be as well in giving the Judgment as in awarding execution upon it. (Tam in redditione judicii, quam in ad- judications execution^.)

A venire tarn quam was one by which a Jury was summoned, as well to try an issue as to inquire of the damages bn a default. 2 Tldd, Pr. 722, 895.

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## TAME.

Domesticated; accustomed to man ; reclaimed from a natural state of wild- ness. In the

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Latin phrase, tame animals are described as domitas natural.

5e apparatus — Carried into the 5th edition (1979).

## TAMES.

Lat. Notwithstanding; never- theless ; yet.

5e apparatus — Not carried into the 5th edition (1979).

## TANGIBLE PROPERTY.

Property which may be touched ; such as is perceptible to the senses; corporeal property, whether real or personal. The phrase is used in op- position to such species of property as pat- ents, franchises, copyrights, rents, ways, and incorporeal property generally.

5e apparatus — Carried into the 5th edition (1979).

## TANISTRY.

In old Irish law. A spe- cies of tenure, founded on ancient usage, which allotted the inheritance of lands, cas- tles, etc., to the “oldest and worthiest man of the deceased’s name and blood.” It was abolished in the reign of James I. Jacob; Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TANNERIA.

In old English law. Tan- nery; the trade or business of a tanner. Fleta, lib. 2, c. 52, g 35.

5e apparatus — Not carried into the 5th edition (1979).

## TANTEO.

Span. In Spanish law. Pre- emption. White, New Recop. b. 2, tit 2, c. 3.

5e apparatus — Not carried into the 5th edition (1979).

## TANTO, BIGHT OF.

In Mexican law. The right enjoyed by an usufructuary of property, of buying the property at the same price at which the owner offers it to any other person, or is willing to take from an- other. Civ. Code Mex. art 992.

Tamtam bona valent, quantum vendl pouunt. Shep. Touch. 142. floods are worth so much as they can be sold for.

5e apparatus — Not carried into the 5th edition (1979).

## TARDE VENIT.

Lat. In prnetice. The name of a return made by the sheriff to a writ, when it came Into his hands too late to be executed before the return-day.

5e apparatus — Not carried into the 5th edition (1979).

## TAKE.

A deficiency in the weight or quantity of merchandise by reason of the Weight of the box, cask, bag, or other recep- tacle which contains it and is weighed with it. Also an allowance or abatement of a cer- tain weight or quantity which the seller makes to the buyer, on

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account of the weight of such box, cask, etc. Napier v. Barney, 5 Blatchf. 191, 17 Fed. Cas. 1149. See Tbet.

5e apparatus — Carried into the 5th edition (1979).

## TARIFF.

A cartel of commerce, a book of rates, a table or catalogue, drawn usually In alphabetical order, containing the names of several kinds of merchandise, with the duties or customs to be paid for the same, as settled by authority, or agreed on between the several princes and states that hold com- merce together. Enc. Load. ; Railway Co. v. Cushman, 92 Tex. 623, 50 S. W. 1009.

The list or schedule of articles on which a duty is imposed upon their importation into the United States, with the rates at which they are severally taxed. Also the custom or duty payable on such articles. And, de- rivatively, the system or principle of impos- ing duties on the importation of foreign mer- chandise.

5e apparatus — Not carried into the 5th edition (1979).

## TASSUM.

In old English law. A heap; a hay-mow, or hay-stack. Fan ton In tassis, hay In stacks. Reg. Orig. 96.

5e apparatus — Not carried into the 5th edition (1979).

## TATH.

In the counties of Norfolk and Suffolk, the lords of manors anciently claimed the privilege of having their tenants’ flocks or sheep brought at night upon their own demesne lands, there to be folded for the im- provement of the ground, which liberty was called by the name of the “tath." Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## TATTRI UBEBI LIBERT 18.

Lat. A common bull ; because he was free to all the tenants within such a manor, liberty, etc.

5e apparatus — Not carried into the 5th edition (1979).

## TAUTOLOGY.

Describing the same thing twice in one sentence in equivalent terms; a fault in rhetoric. It differs from

repetition or Iteration, which is repeating the same sentence in the same or equivalent terms ; the latter is sometime* either excus- able or necessary in an argument or address; the former (tautology) never. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TAVERN.

A place of entertnlnnient ; a house kept up for the accommodation of strangers. Originally,

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a house for the retail- ing of liquors to be drunk on the spot Web- ster.

The word “tavern,” in a charter provision au- thorizing municipal authorities to “license and regulate taverns,” includes hotels. “Tavern,” “hotel,” and “public house” are, in this coun- try, used synonymously; and while they enter- tain the traveling public, and keep guests, and receive compensation therefor, they do not lose their character, though they may not have the privilege of selling liquors. St. Louis v. Kiegrist, 46 Mo. 595. And see State v. Heise, 7 Rich. Law (S. C.) 520: Bonner v. Welbom. 7 Ga. 306; Rafferty v. Insurance Co., 18 N. J. Law, 484, 38 Am. Dec. 525; In re Brewster, 39 Misc. Rep. 689, 80 N. Y. Supp. 666; Braswell y. Comm., 5 Bush tKy.) 544 ; Kelly v. New York, 54 IIow. Prac. (N. Y.) 33L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TAVERN-KEEPER.

One who keeps a tavern. One who keeps an inn; an inn- keeper.

5e apparatus — Carried into the 5th edition (1979).

## TAVERNER.

In old English law. A seller of wine ; one who kept a house or shop for the sale of wine.

. TAX, v. To impose a tax ; to enact or de- clare that a pecuniary contribution shall be made by the persons liable, for the support of government Spoken of an individual, to be taxed is to be included in an assessment made for purposes of taxation.

In praotloe. To assess or determine; to liquidate, adjust, or settle. Spoken particu- larly of taxing costs, (q. v.)

TAX, n. Taxes are a ratable portion of the produce of the property and labor of the individual citizens, taken by the nation, in the exercise of its sovereign rights, for the support of government, for the administra- tion of the laws, and as the means for con- tinuing'in operation the various legitimate functions of the state. Black, Tax Titles, i 2; New London v. Miller, 60 Conn. 112, 22 Atl. 499; Graham v. St. Joseph Tp., 67 Midi. 052, 35 N. W. 808; Gibbons v. Ogden, 9 Wheat. 1, 6 I* Ed. 23.

Taxes are the enforced proportional contri- bution of persons and property, levied by the authority of the state for the support of the government, and for all public needs; por- tions of the property of the citizen, demand- ed and received by the government, to be dis- posed of to enable it to discharge its func- tions. Opinion of Justices, 58 Me. 590; Moog v. Randolph, 77 Ala. 597 ; Palmer .v. Way, 6 Colo. 106; Wagner v. Rock Island. 146 IU. 139, 34 N. E. 545, 21 L. R. A. 519; In re Hun, 144 N. Y. 472, 39 N. B. 376;

,TAX

Taylor v. Boyd, 63 Tex. 533; Morgan’s Co. v. State Board of Health, 118 U. S. 435, 6 Sup. Ct 1114, 30 I* Ed. 237 ; Dranga v. Rowe, 127 Cal. 506, 50 Pac. 944; McClelland v. State. 138 Ind. 321, 37 N. E. 1089 ; Hanson v. Vernon, 27 Iowa. 28, 1 Am. Rep. 215; Bonaparte v. State, 63 Md. 465 ; Pittsburgh, etc., R. Co. v. State, 49 Ohio St. 189, 30 N.

E. 435, 16 L. R. A. 380; Illinois Cent R. Co. v. Decatur, 147 U. S. 190, 13 Sup. Ct 293, 87 I* Ed. 132.

In a general sense, a tax is any contribu- tion Imposed by government upon individuals, for the use and service of the state, whether under the name of toll, tribute, tallage, gabel, impost, duty, custom, excise, subsidy, aid, supply, or other name. Story, Const. § 950.

Synonyms. In a broad sense, taxes un- doubtedly include assessments, and the right to impose assessments has its foundation in the taxing power of the government; and yet. In practice and as generally understood, there is a broad distinction between the two terms. “Taxes,” as the term is generally used, are public burdens imposed generally upon the inhabitants of the whole state, or upon some civil division thereof, for govern- mental purposes, without reference to pecul- iar benefits to particular individuals or prop- erty. “Assessments” have reference to impo- sitions for improvements which are specially beneficial to particular Individuals or prop- erty, and which are imposed In proportion to the particular benefits supposed to be con- ferred. They are justified only because the improvements confer special benefits, and are Just only when they are divided in proportion to such benefits. Roosevelt Hospital v. New York, 84 N. Y. 112. As distinguished from other kinds of taxation, “assessments" are those special and local impositions upon prop- erty in .the immediate vicinity of munici- pal improvements which are necessary to pay for the improvement, and are laid with ref- erence to the special benefit which the prop- erty is supposed to have derived therefrom. Hale v. Kenosha, 29 Wis. 599; Ridenour v. 'Baffin, 1 Handy (Ohio) 404; King v. Port- land, 2 Or. 146; Williams v. Corcoran, 46 Cal. 553.

Taxes differ from subsidies, In being cer- tain and orderly, and from forced Contribu- tions, etc., in that they are levied by author- ity of law, and by some rule of proportion which is intended to insure uniformity of contribution, and a just apportionment of the burdens of government Cooley, Tax’n, 2.

The words “tax" and “excise," although often used as synonymous, are to be consid- ered as having entirely distinct and separate significations. The former is a charge appor- tioned either among the whole people of the state, or those residing within certain dis- tricts, municipalities, or sections. It is re- quired to be imposed, as we shall more fully explain hereafter, so that, if levied for the public charges of government, it shall be



shared according to the estate, real and per- sonal, which each person may possess ; or, if raised to defray the cost of some local govern- ment of a public nature, it shall be borne by those who will receive some special and pe- culiar benefit or advantage which an expen- diture of money for a public object may cause to those on whom the tax is assessed. An excise, on the other hand, is of a different charaeter. It is based on no rule of appor- tionment or equality whatever. It is a fixed, absolute, and direct charge laid on merchan- dise, products, or commodities, without any regard to the amount of property belonging to those on whom it may fall, or to any sup- posed relation between money expended for a public object and a special benefit occasioned to those by whom the charge Is to be paid.

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Oliver v. Washington Mills, 11 Allen (Mass.) 274.

—Ad valorem tax. See Ad Valorem.— Cap- itation tax. See that title. — Collateral in- heritance tax. See Collateral Inheri- tance.—Direct tax. A direct tax is one which is demanded from the very persons who, it is intended or desired, should pay it. In- direct taxes are those which are demanded from one person, in the expectation and in- tention that he Bhall indemnify himself at the expense of another. Mill, Pol. Econ. Taxes are divided into “direct.” under which desig- nation would be included those which are as- sessed upon the property, person, business, in- come. etc., of those who are to pay them, and "indirect," or those which are levied on com- modities before they reach the consumer, and are paid by those upon whom they ultimately fall, not as taxes, but as part of the market price of the commodity. Cooley, Tax’n, 6. Historical evidence shows that personal prop- erty, contracts, occupations, and the like, have never been regarded as the subjects of direct tax. The phrase is understood to be limited to taxes on land and its appurtenances, and on polls. Vcazie Bank v. Fenno, 8 Wall. 533. 19

L. Ed. 482. See Hvlton v. U. S„ 3 Dali. 171. 1 Xj. Ed. 556; Pacific Ins. Co. v. Soule, 7 Wall. 445. 19 L. Ed. 95: Scholey v. Rew, 90 U. S. 347. 23 L. Ed. 99; Springer v. U. S., 102 U. S. 002. 26 L. Ed. 253 ; Vcazie Bank v. Fenno, 8 Wall. 533, 19 L. Ed. 482 ; Pollock v. Farmers’ U & T. Co.. 157 IT. S. 429, 15 Sup. Ct. 073, 39 L. Ed. 759; Railroad Co. v. Morrow, 87 Tenn. 406. 11 S. W. 348, 2 Tj.

R. A. 853: People v. Knight, 174 N. Y. 475, 07 N. E. 65, 63 L. R. A. 87. — Franchise tax. See Franchise. — Income tax. See Income. —Indirect taxes are those demanded in the first instance from one person in the expecta- tion and intention that he shall indemnify him- self at the expense of another. “Ordinarily all taxes paid primarily by persons who can shift the burden upon some one else, or who are under no legal compulsion to pay them, are considered indirect taxes.” Pollock v. Far- mers’ I* & T. Co., 157 U. S. 429, 15 Sup. Ct. 673, 39 L. Ed. 759; Springer v. D. S., 102 U. S. 602. 26 B. Ed. 253; Thomasson v. State, 15 Ind. 451. — Inheritance tax. See Inheritance.— License tax. See Li- cense.— Local taxes. Those assessments which are limited to certain districts, as poor- rates. parochial taxes, county rates, municipal taxes, etc.— Occapatlon tax. See Occupa- tion.—Parltameatary taxes. Such taxes ns are' imposed directly by act of parliament, t. e„ by the legislature itself, as distinguished from those which are imposed by private in- dividuals or bodies under the authority of an net of parliament. Thus, a sewers rate, not being imposed directly by act of parliament,

but by certain persons termed “commissioners of sewers,” is not a parliamentary tax ; where- as the income tax, which is directly imposed, and the amount also fixed, by act of parliament, is a parliamentary tax. Brown.— Personal

tax. This term may mean either a tax im- posed on the person without reference to prop- erty, as, a capitation or poll tax, or a tax im- posed on personal property, as distinguished from one laid on real property. See Jade v. Walker (C. C.) 79 Fed. 141; Potter v. Ross, 23 N. J. Law, 517; Bates’ Ann. St. Ohio. 1904, § 2860.— Poll tax. See that title.— PnbUo tax. A tax

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levied for some general public purpose or for the purposes of the gen- eral public revenue, as distinguished from local municipal taxes and assessments. Morgan v. Cree, 46 Vt. 783, 14 Am. Rep. 040 ; Buffalo Citv Cemetery v. Buffalo, 46 N. Y. 509. — Spe- cific tax. A tax imposed as a fixed sum on each article or item of property of a given class or kind, without regard to its value ; opposed to ad valorem tax.— Succession tax. See Suc- cession.—Tax certificate. A certificate of the purchase of land at a tax sale thereof, given by the officer making the sale, and which Is evidence of the holder's right to receive a deed of the land if it is not redeemed within the time limited by law. See Eaton v. Mani- towoc Cduntv, 44 Wis. 492 ; Nelson v. Central Land Co.. 35 Minn. 408, 29 N. W. 121.— Tax- deed. The conveyance given upon a sale of lands made for non-payment of taxes ; the deed whereby the officer of the, law undertakes to convey the title of the proprietor to the pur- chaser at the tax-sale.— Tax lease. The instru- ment (or estate) given to the purchaser of land at a tax sale, where the law does not permit the sale of the estate in fee for non-payment of taxes, but instead thereof directs the sale of an estate for years.— Tax levy. The total sura to be raised by a tax. Also the bill, enactment, or measure of legislation by which an annual or general tax is imposed.— Tax-lien. A stat- utory lien, existing in favor of the state or mu- nicipality, upon the lands of a person charged with taxes, binding the same either for the taxes assessed ' upon the specific tract of land or (in some jurisdictions) for all the taxes due from the Individual, and which may be foreclosed for non-payment, by judgment of a court or sale of the land.— Tax-payer. A person chargeable with a tax; one from whom government de- mands a pecuniary contribution towards its support.— Tax-payers’ lists. Written exhib- its required to be made out by the tax-payers resident in a district, enumerating all the prop- erty owned by them and subject to taxation, to be handed to the assessors, at a specified date or at regular periods, as a basis for assessment and valuation.— Tax purchaser. A person who buys land at a tax-sale; the person to whom land, at a tax-sale thereof, is struck down.— Tax roll. See Role. — Tax sale. See Sale.— Tax-title. The title by which one holds land which he purchased at a tax- sale. That species of title which is inaugurated by a successful bid for land at a collector's sale of the same for non-payment of taxes, com-

Sleted by the failure of those entitled, to re- eem within the specified time, and evidenced by the deed executed to the tax purchaser, or his assignee, by the proper officer. — Taxing; district. The district throughout which a par- ticular tax or assessment is rntably apportion- ed and levied upon the inhabitants ; it may comprise the whole state, one county, a city, a ward, or part of a street.— Tonnage tax. See Tonnage Duty.— Wheel tax. A tax on wheeled vehicles of some or all kinds and bi- cycles.—Window tax. See Window.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Shakespeare, Henry IV, Part 1, c. 1597]**

(paraphrase) Mistress Quickly keeps the Boar's Head Tavern in Eastcheap, pouring sack for Falstaff and Prince Hal. (paraphrase)

Why: The archetypal literary tavern-keeper — one who keeps a house for the sale of wine and drink, as defined. (TAVERN and TABERNACULUM left bare; one note carries the house.)

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## TAXA.

L. Lat. A tax. Spelman.

In old records. An allotted piece of work ; a task.

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## TAXABLE.

Subject to taxation; liable ' to be assessed, along with others, for a share in a tax. Persons subject to taxation are sometimes called “taxables;" so property which may be assessed for taxation is said to be taxable.

Applied to costs in an action, the word means proper to be taxed or charged up ; le- gally chargeable or assessable.

5e apparatus — Carried into the 5th edition (1979).

## TAXABE.

Lat. To rate or value. Cal- vin.

To tax ; to lay a tax or tribute. Spelman.

In old English practice. To assess ; to rate or estimate ; to moderate or regulate an assessment or rate.

5e apparatus — Not carried into the 5th edition (1979).

## TAXATI.

In old European law. Soldiers of a garrison or fleet, assigned to a certain station. Spelman.

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## TAXATIO.

Lat In Roman law. Taxa- tion or assessment of damages; the assess- ment by the judge, of the amount of dam- ages to be awarded to a plaintiff, and particu- larly in the way of reducing the amount claimed or sworn to by the latter.

5e apparatus — Not carried into the 5th edition (1979).

## TAXATIO ECCLESIASTICA.

The val- uation of ecclesiastical benefices made through every diocese in England, on occa- sion of Pope Innocent IV. granting to King Henry III. the tenth of all spirituals for three years. This taxation was first made by Walter, bishop of Norwich, delegated by the pope to this office in 38 Hen. III., and hence called “ Taxalio Nortcicencit." It la also call- ed “Pope Innocent’s Valor." Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TAXATIO EXPENS ARUM.

In old Eng- lish practice. Taxation of costs.

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## TAXATIO NORWICENSIS.

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A valua- tion of ecclesiastical benefices made throdgh every diocese in England, by Walter, bishop of Norwich, delegated by the pope to this office in 38 Hen. LIL Cowell.

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## TAXATION.

The imposition of a tax; the act or process of imposing and levying a pecuniary charge or enforced contribution, ratable, or proportioned to value or some other standard, upon persons or property, by or on behalf of a government or one of its divisions or agencies, for the purpose of pro- viding revenue for the maintenance and ex- penses of government.

The term “taxation,” both in common par- lance and in the laws of the several states, has been ordinarily used, not to express the idea of the sovereign power which is exercised, but the exercise of that power for a particular purpose, viz., to raise a revenue for the general and ordinary expenses of the government, whether it be the state, county, town, or city government. But there is another class of ex- penses. also of a public nature, necessary to be provided for, peculiar to the local government of counties, cities, towns, and even smaller sub- divisions, such as opening., grading, improving in various ways, and repairing, highways and

streets, and constructing sewers in cities, and canals and ditches for the purpose of drainage in the country. They arc generally of pecul- iar local benefit. These burdens have always, in every state, from its first settlement, been charged upon the localities benefited, and have been apportioned upon various principles; but, whatever principle of apportionment has been adopted, they have been known, both in the legislation and ordinary speech of the country, by the name of “assessments.” Assessments have also, very generally, if not always, been apportioned upon principles different from those adopted in "taxation," in the ordinary sense of that term ; and any one can see, upon a mo- ment’s reflection, that the apportionment, to bear equally, and do substantial justice to all parties, must be made upon a different prin- ciple from that adopted in “taxation,” so called. Emery v. gan Francisco Gas Co., 28 Cal. 356.

The differences between taxation and taking property in right of eminent domain are that taxation exacts money or services from individ- uals, as and for their respective shares of con- tribution to any public burden ; while private property taken for public use, by right of emi- nent domain, is taken, not as the owner’s share of contribution to a public burden, but as so much beyond his share, and for which com- pensation must be made. Moreover, taxation operates upon a community, or upon a class of persons in a community, and by some rule of apportionment • while eminent domain operates upon an individual, and without reference to the. amount or value exacted from any other individual, or class of individuals. People Brooklyn, 4 N. Y. 419, 55 Am. Dec. 266.

— Double taxation. See Double.— Taxa- tion of costs. In practice. The process of ascertaining and charging up the amount of costs in an action to which a party is legally entitled, or which are legally chargeable. And, in English practice, the process of examining the items in an attorney’s bill of costs and making the proper deductions, if any.

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TAXEKg. Two officers yearly chosen in Cambridge, England, to see the true gauge of all the weights and measures.

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: Taxation is the imposition and levy of pecuniary charge by government; Christ's answer to the tax question establishes both tribute's lawfulness and its limit.

## TAXING MASTER.

See Master.

5e apparatus — Carried into the 5th edition (1979).

## TAXING OFFICER.

Each house of par- liament has a taxing officer, whose duty it is to tax the costs incurred by the promot- ers or opponents of private bills. May, Pari. Pr. 843.

5e apparatus — Not carried into the 5th edition (1979).

## TAXING POWER.

The power of any government to levy taxes.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:6, KJV]**

For for this cause pay ye tribute also: for they are God's ministers, attending continually upon this very thing.

Why: The taxing power is government's power to levy taxes; the verse warrants the tribute and names its ministers.

## TAXT-WARD.

An annual payment made to a superior in Scotland, instead of the duties due to him under the tenure of ward-holding. Abolished. Wharton.

TEAM, or THEAME. In old English

law. A royalty or privilege granted, by royal charter, to a lord of a manor, for the having, restraining, and judging of bond- men and villeins, with their children, goods, and chattels, etc. Gian. lib. 5, c. 2.

5e apparatus — Not carried into the 5th edition (1979).

## TEAM.

Within the meaning of an ex- emption law, a “team” consists of either one or two horses, with their harness and the vehicle to which they are customarily at- tached for use. Wilcox v. Hawley, 31 N. Y. 655^

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## TEAM WORK.

Within the meaning of an exemption law, this term means work done by a team as a substantial part of a man's business ; as in farming, staging, ex- press carrying, drawing of freight, peddling, or the transportation of material used or dealt in as a business. Hlckok v. Thayer, 49 Yt 375.

5e apparatus — Not carried into the 5th edition (1979).

## TEAMSTER.

One who drives horses in a wagon for the purpose of carrying goods for hire. He is liable as a common carrier. Story, Bailm. | 496.

5e apparatus — Carried into the 5th edition (1979).

## TECHNICAL.

Belonging or peculiar to an art or profession. Technical terms are frequently called In the books "words of art"

— Technical mortgage. A true and formal mortgage, as distinguished from other instru- ments which, in some respects, have the char- acter of equitable mortgages. Harrison v. An- napolis A E. R. R. Co., 50 Md. 514.

5e apparatus — Carried into the 5th edition (1979).

## TEDDING.

Spreading. Tedding grass is spreading it out after it is cut in the swath. 10 East, 5.

5e apparatus — Not carried into the 5th edition (1979).

## TEDIN G-PENN Y.

In old English law. A small tax or allowance to the sheriff from each tithing of his county towards the .charge of keeping courts, etc. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TEEP.

In Hindu law. A note of hand; a promissory note given by a native banker or money-lender to zemindars and others, to enable them to furnish government with se- curity for the payment of their rents. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## TEGTTLA.

In the civil law. A tile. Dig. 19, 1, 18.

5e apparatus — Not carried into the 5th edition (1979).

## TEIND COURT.

In Scotch law. A court which has jurisdiction of matters relat- ing to teinds, or tithes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: The teind court has jurisdiction of tithes; the verse commands the tithes into the storehouse with the divine promise attached.

## TEIND MASTERS.

Those entitled to tithes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 18:21, KJV]**

And, behold, I have given the children of Levi all the tenth in Israel for an inheritance, for their service which they serve, even the service of the tabernacle of the congregation.

Why: TEIND MASTERS are 'those entitled to tithes.' Numbers 18:21 is the charter of that entitlement: God grants the Levites 'all the tenth in Israel for an inheritance' for their service. The verse is the legal root of who...

## TEINDS.

In Scotch law. A term corres- ponding to tithes ( q . v.) In English ecclesias- tical law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 23:23, KJV]**

Woe unto you, scribes and Pharisees, hypocrites! for ye pay tithe of mint and anise and cummin, and have omitted the weightier matters of the law, judgment, mercy, and faith: these ought ye to have done, and not to leave the other undone.

Why: TEINDS is the Scots-law term for tithes. Christ treats tithing as a matter 'of the law' while subordinating it to judgment, mercy, and faith — the verse genuinely frames the tithe as a legal obligation with a moral hi...

## TE INLAND.

Sax. In old English law. Land of a thane or Saxon noble ; land grant- ed by the crown to a thane or lord. Cowell ; 1 Reeve, Eng. Law, 5.

5e apparatus — Not carried into the 5th edition (1979).

## TELEGRAM.

A telegraphic dispatch ; a message sent by telegraph.

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## TELEGRAPH.

In the English telegraph act of 1863, the word is defined as “a wire or wires used for the purpose of telegraphic communication, with any casing, coating, tube, or pipe Inclosing the same, and any ap- paratus connected therewith for the purpose of telegraphic communication.” St 26 & 27 Vlct c. 112, | 3.

TELEGRAPHIST A word occasionally used In old English law to describe ancient documents or written evidence of things past. Blount

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**[Law] — Law**

**[Law: Telegraph Act 1863, 26 & 27 Vict. c. 112, § 3 — 'a wire or wires used for the purpose of telegraphic communication ... and any apparatus connected therewith']**

The entry's own definition of 'telegraph' is the statutory definition from the English Telegraph Act of 1863.

Why: Genuine because the statute is the entry's own cited source for the definition; the footnote anchors the dictionary definition to the real enactment rather than importing an external fact.

## TELEPHONE.

In a general sense, the name “telephone” applies to any Instrument or apparatus which transmits sound beyond the limits of ordinary audibility. But since the recent discoveries in telephony, the name is technically and primarily restricted to an instrument or device which transmits sound by means of electricity and wires similar to telegraphic wires. In a secondary sense, however, being the sense in which it is most commonly understood, the word "telephone” constitutes a generic term, having reference generally to the art of telephony as an insti- tution, but more particularly to the appara- tus, as an entirety, ordinarily used in the transmission, as well as in the reception, of telephonic messages, lloekett v. State, 105 Ind. 261, 5 N. B. 178, 55 Am. Rep. 201.

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## TELLER.

One who numbers or counts. An officer of a bank who receives or pays out money. Also one appointed to count the votes cast in a deliberative or legislative as- sembly or other meeting. The name was also given to certain officers formerly attach- ed to the English exchequer.

The teller is a considerable officer in the ex- chequer, of which officers there are four, whose office is to receive all money due to the king, and to give the clerk of the pells a bill to charge him therewith. They also pay to all persons any money payable by the king, and make weekly and yearly books of their receipts and payments, which they deliver to the lord treas- urer. Cowell ; Jacob.

—Tellers In parliament. In the language of parliament, the "tellers” are the members of the house selected to count the members when a division takes place. In -the house of lords a division is effected by the "non-con- tents” remaining within the bar, and the “con- tents” going below it, a teller being appointed for each party. In the commons the “ayes” go into the lobby at one end of the house, and the “noes” into the lobby at the other end, the house itself being perfectly empty, and two tellers being appointed for each party. May, Pari. Pr. ; Brown.

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## TELLIGRAPHUM.

An Anglo-Saxon charter -of land. 1 Reeve, Eng. Law, c. 1,

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p. 10.

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## TELLWORG.

That labor which a ten- ant was bound to do for his lord for a cer- tain number of days.

TEMENTALE, or TENEMENT ALE . A

tax of two shillings upon every plow-land, a decennary.

5e apparatus — Not carried into the 5th edition (1979).

## TEMERE.

Lat. In the civil law. Rash- ly; inconsiderately. A plaintiff was said temcre lit iff are who demanded a thing out of malice, or sued without Just cause, and who could show no ground or cause of action. Brlssonlus.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Corinthians 6:7, KJV]**

Now therefore there is utterly a fault among you, because ye go to law one with another. Why do ye not rather take wrong? why do ye not rather suffer yourselves to be defrauded?

Why: TEMERE describes the plaintiff who sues rashly, from malice, or without just cause. Paul's rebuke names going to law itself 'utterly a fault' and asks why the wronged do not rather suffer it — a direct scriptural cens...

**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Festina lente ('make haste slowly') — motto of Augustus, Suetonius, Aug. 25]**

The civil-law vice of rash litigation meets its classical antidote. [Maxim: Festina lente — 'make haste slowly,' motto of Augustus, recorded by Suetonius, Lives of the Caesars, Aug. 25]

Why: TEMERE is rash, inconsiderate action — the plaintiff who 'temere litigat' sues without just cause. Festina lente counsels the opposite virtue (deliberation), so the maxim frames the entry by naming what the rash litig...

## TEMPEST.

A violent or furious storm; a current of wind rushing with extreme vio- lence. and usually accompanied with rain or snow. See Stover v. Insurance Co., 3 Phila. (Pa.) 39; Thistle v. Union Forwarding Co^ 29 U. C. C. P. 84.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Tempest, 1611]**

"Full fathom five thy father lies; / Of his bones are coral made;"

Why: The entry defines a violent storm as treated in marine-insurance cases (Stover v. Insurance Co. cited). Ariel's song (Act 1, sc. 2) is English literature's most famous tempest-at-sea image — a shipwreck's aftermath —...

## TEMPLARS.

A religious order of knight- hood, Instituted about the year 1119, and so called because the members dwelt In a part of the temple of Jerusalem, and not far from the sepulcher of our Lord. They enter- tained Christian strangers and pilgrims char- itably, and their profession was at first to defend travelers from highwaymen and rob- bers. The order was suppressed

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A. L>. 1307, and their substance given partly to the knights of St. John of Jerusalem, and partly to other religious orders. Brown.

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## TEMPLE.

Two English inns of court, thus called because anciently the dwelling place of the Knights Templar. On the sup- pression of the order, they were purchased by some professors of the common law, and converted Into hospitia or inns of court. They are called the “Inner” and “Middle Temple," in relation to Essex House, which was also a part of the house of the Templars, and called the “Outer Temple,” because sit- uated without Temple Bar. Euc. Loud.

5e apparatus — Carried into the 5th edition (1979).

## TEMPORAL LORDS.

The peers of Eng- land; the bishops are not in strictness held to be peers, but merely lords of parliament 2 Steph. Comm. 830, 345.

5e apparatus — Carried into the 5th edition (1979).

## TEMPORALIS.

Lat In the civil law. Temporary; limited to a certain time

—Temporalis actio. An action which could only be brought within a certain period,— Tern* poralis ezoeptlo. A temporary exception which barred an action for a time only.

5e apparatus — Not carried into the 5th edition (1979).

## TEMPORALITIES.

In English law. The lay fees of bishops, with which their churches are endowed or permitted to be en- dowed by the liberality of the sovereign, and in virtue of which they become barons and lords of parliament. Spelman. In a wider sense, the money revenues of a church, de- rived from pew rents, subscriptions, dona- tions, collections, cemetery charges, and oth- er sources. See Barabasz v. Rabat, 86 Md. 23, 37 Atl. 720.

5e apparatus — Not carried into the 5th edition (1979).

## TEMPORALITY.

The laity; secular people.

5e apparatus — Carried into the 5th edition (1979).

## TEMPORARY.

That which is to last for a limited time only, as distinguished from that which is perpetual, or indefinite, in its duration. Thus, temporary alimony is granted for the support of the wife pending the action for divorce. ’Dayton v. Drake, 64 Iowa. 714. 21 N. W. 158. A temporary In- junction restrains action or any change in the situation of affairs until a hearing oo

the merits can be had. Jesse French Plano Oo. v. Porter, 134 Ala. 302, 32 South. 678, 92 Am. St. Rep. 31; Calvert v. State, 34 Neb. 616, 52 N. W. 687. A temporary receiver Is one

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appointed to take charge of property un- til a hearing is had and an adjudication made. Boonville Nat Bank v. Blakey, 107 Fed. 895, 47 C. C A. 43. A temporary stat- ute Is one limited In respect to Its duration. People v. Wright, 70 111. 399. As to tem- porary Insanity, see Insanity.

5e apparatus — Carried into the 5th edition (1979).

## TEMPORE.

Lat. In the time of. Thus, the volume called “Cases tempore Holt" Is a collection of cases adjudged In the king's bench during the time, of Lord Holt. Wall. Rep. 398.

5e apparatus — Not carried into the 5th edition (1979).

## TEMPORIS EXCEPTIO.

Lat In the civil law. A plea of time; a plea of lapse of time, In bar of an action. Corresponding to the plea of prescription, or the statute of limitations, In our law. See Mackeld. Rom. Taw, ! 213.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: plea of prescription; statutes of limitation]**

The civil-law plea of lapse of time corresponds in common-law practice to the plea of prescription and to statutes of limitation barring stale actions.

Why: Genuine because the entry itself draws this bridge ('Corresponding to the plea of prescription, or the statute of limitations, in our law'); the footnote makes the civil-law/common-law equivalence explicit as a real p...

## TEMPUS.

Lat In the civil and old English law. Time In general. A time lim- ited; a season; e. g., tempus pestonia, mast time In the forest.

—Tempus continuum. In the civil law. A continuous or absolute period of time. A term which begins to run from a certain event, even though he for whom it runs has no knowledge of the event, and in which, whm it has once begun to run, all the days art reckoned as they follow one another In the calendar. Dig. 8, 2, 8; Mackeld. Rom. I .aw, f 195.— Tempus semestre. In old English law. The period of six months or half a year, consisting of one hundred and eighty-two days. Cro. Jac. 166. —Tempus utile. In the civil law. A profit- able or advantageous period of time. A term which begins to run from a certain event, only when he for whom it runs has obtained a knowl- edge of the event, and in which, when it has once begun to run, those days are not reckoned on which one has no ear periundi potestaa; i. e., on which one cannot prosecute his rights before a court Dig. 3, 6, 6; Mackeld. Rom. Law. f 195.

Tempus enim modus tollendi oMlga- tlones «t action**, quia tempus ourrit eontra desides et sui juris con temp tores.

For time is a means of destroying obliga- tions and actions, because time runs against the slothful and contemners of their own rights. FI eta, 1. 4, c. 5, § 12.

TENANCY is the relation of a tenant to the land which he holds. Hence it signifies

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(1) the estate of a tenant, as In the expres- sions “joint tenancy,” “tenancy in common;”

(2) the term or Interest of a tenant for years or at will, as when we say that a lessee must remove his fixtures during his tenancy. Sweet.

— General tenancy. A tenancy which is sot fixed and made certain in point of duration by the agreement of the parties. Brown v. Bragg, 22 Ind. 122.— Joint tenancy. An estate in joint tenancy is an estate in fee-simple, fee-tall, for life, for years, or at will, arising by purchase or grant to two or more persons. Joint tenants have one and the same interest, accruing by one and the same conveyance, commencing at one and the same time, and held by one and the same undivided possession. The grand in- cident of joint tenancy is survivorship, oy which the entire tenancy on the decease of any joint tenant remains to the survivors, and at length to the last survivor. Pub. St. Mass. 1882, p. 1292; Simons v. McLain, 51 Kan. 153, 32 Pac. 919; Thornburg v. Wiggins, 133 Ihd. 178. 34

N. E. 999. 22 L. R. A. 42, 41 Am. St. Rep. 422; Appeal of Lewis, 85 Mich. 340, 48 N. W. 580, 24 Am. St. Rep. 94 ; Redemptorist Fathers v. Lawler, 205 Pa. 24, 54 Atl. 487. A joint in- terest is one owned by several persons in equal shares, by a title created by a single will or transfer, when expressly declared in the will or transfer to be a joint tenancy, or when granted or devised to executors or trustees as joint ten- ants. Civ. Code Cal. $ 683. — Several tenan- cy. A tenancy which is separate, and not held jointly with another person. — Tenancy at suf- ferance. This is the least and lowest estate which can subsist in realty. It is in strictness not an estate, but a mere possession only. It arises when a person, after his right to the oc- cupation, under a lawful title, is at an end, con- tinues (having no title at all) in possession of the land, without the agreement or disagreement of the person in whom the right of possession re- sides. 2 Bl. Comm. 150.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tempus enim modus tollendi obligationes et actiones, quia tempus currit contra desides et sui juris contemptores — 'For time is a means of destroying obligations and actions, because time runs against the slothful and contemners of their own rights' (Fleta, l. 4, c. 5, § 12)]**

Time destroys obligations and actions because it runs against the slothful and those who neglect their own rights.

Why: Genuine because the maxim is quoted verbatim in the entry itself with its authority (Fleta); the footnote preserves the maxim's classic formulation of the limitation-policy behind time-bars.

**[Axiom: the four unities of joint tenancy — time, title, interest, possession; survivorship as the grand incident (2 Bl. Comm. 180)]**

Joint tenancy requires the four unities — unity of time, title, interest, and possession — and its grand incident is survivorship, the whole tenancy passing to the surviving joint tenants.

Why: Genuine because the entry states this doctrine (quoting 2 Bl. Comm. 180) as the definition of joint tenancy; the footnote distills it into the classic axiom-form without inventing any citation.

## TENANT.

In the broadest sense, one who holds or possesses lands or tenements by any kind of right

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or title, whether In fee, for life, for years, at will, or otherwise. Cowell.

In a more restricted sense, one who holds lands of another; one who has the tempo- rary use and occupation of real property owned by another person, (called the “land- lord,") the duration and terms of his ten- ancy being usually fixed by an Instrument called a “lease.” See Becker v. Becker, 13 App. DIv. 342, 43 N. Y. Supp. 17 ; Bowe v. Hunklng, 135 Mass. 383, 46 Am. Rep. 471 ; Clift v. White, 12 N. Y. 527; Lightbody v. Trueteen, 39 Minn. 310, 40 N. W. 67 ; Wool- sey v. State, 30 Tex. App. 347, 17 S. W. 546.

The word “tenant” conveys a much more com- prehensive idea in the language of the law than It does in its popular sense. In popular lan- guage it is used more particularly as opposed to the word “landlord,” and always seems to imply that the land or property is not the tenant's own, hut belongs to some other person, of whom he immediately bolds it. But. in the language Of the law, every possessor of landed property is called a “tenant’f with reference to such prop- erty. and this, whether such landed property is absolutely his own, or whether be merely bolds it under a lease for a certain number of years. Brown.

Im feudal law. One who holds of an- other (called “lord” or “superior”) by some service; as fealty or rent

One who has actual possession of lauds claimed In suit by another ; the defendant In a real action. The correlative of “demand- ant." 3 Bl. Comm. 180.

Strictly speaking, . a “tenant" Is a person who bolds land; but the term Is also ap- plied by analogy to personalty. Thus we speak of a person belug tenant for life, or tenant in common, of stock. Sweet.

— Joint tenants. Two or more persons to whom are granted lands or tenements to hold In

fee-simple, fee-tail, for life, for years, or at will.

2 Bl. Comm. 179. Persons who own lands by a joint title created expressly by one and the same deed or will. 4 Kent, Comm. 357. Joint tenants have one and the same interest, accru- ing by one and the same conveyance, commenc- ing at one and the same time, and held by one and the same undivided possession. 2 Bl. Comm. 180. — Quasi tenant at sufferance. An under-tenant, who is in possession at the determination of an original lease, and isper- mltted by the reversioner to hold over.— Bole tenant. He that holds lands by his own right only, without any other person being joined with him. Cowell.— Tenant a volonte. L, Fr. A tenant at will.— Tenant at sufferance. One that comes into the possession of land by law- ful title, but holds over by wrong, after the de- termination of his interest. 4 Kent, Comm. 116; 2 Bl. Comm. 150; Fielder v. Childs, 73 Ala. 577 ; Pleasants v. Claghorn, 2 Miles (Pa.) 304; Bright v. McOuat, 40 Ind. 525; Gamer v. Hannah, 6 Duer (N. Y.) 270; Wright v. Graves, 80 Ala. 418.— Tenant at will “is where lands or tenements are let by one man to another, to have and to hold to him at the will of the lessor, by force of which lease the lessee is in possession. In this case the lessee is call- ed ‘tenant at will,’ because he hath no certain nor sure estate, for the lessor may pnt him out at what time it pleaseth him.” Litt. § 68; Sweet. Post v. Post, 14 Barb. (N. Y.) 258; Spalding v. Hall, 6 D. C. 125 ; Cunningham y. Holton, 55 Me. 36 ; Willis v. Harrell, 118 Ga. 90(1, 45 S. E. 794.— Tenant lnr copy of oourt roll (shortly,

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"tenant by copy") is the old-fash- ioned name for a copyholder. Litt. § 73.— Ten- ant by tbe curtesy. One who, on the death of his wife seised of an estate of inheritance, after having by her issue bom alive and capable of inheriting her estate, holds the lands and tenements for the term of his life. Co. Litt. 30a; / 2 Bl. Comm. 126.— Tenant by tbe manner. One who has a less estate than a fee in land which remains in the reversioner. He is so called because in avowries and other pleadings it is specially shown in what manner be is tenant of the land, in contradistinction to the veray tenant, who is called simply “tenant.” Ham.

N. P. 393. — Tenant for life. One who holds lands or tenements for the term of his own life, or for that of any other person, (in which case he is called “pur outer vie.") or for more lives than one. 2 Bl. Comm. 120; In re Hyde, 41 Hun (N. Y.) 75.— Tenant for years. One who has the temporary use and possession of lands or tenements not his own, by virtue of a lease or demise granted to him by the owner, for a determinate period of time, as for a year or a fixed number of years. 2 Bl. Comm. 140. —Tenant from year to year. One who holds lands or tenements under the demise of another, where no certain term has been men- tioned, but an annual rent has been reserved. See 1 Steph. Comm. 271 ; 4 Kent, Comm. Ill, 114. One who holds over, by consent given ei- ther expressly or constructively, after the determination of a lease for years. 4 Kent, Comm. 112. See Shore v. Porter, 3 Term, 16; Rothschild v. Williamson, 83 Ind. 388; Hunter v. Frost. 47 Minn. 1. 49 N. W. 327: Arbens v. Bxley. 52 W. Va. 476, 44 S. E. 149, 61 L. R.

A. 9;>7.— Tenant in capita. In feudal and old English law. Tenant in chief; one who held immediately under the king, in right of his crown and dignity. 2 Bl. Comm. 60.— Tenant in common. Tenants in common are general- ly defined to be such as hold the same land together by several and distinct titles, but by unity of possession, because none knows his own severalty, and therefore they all occupy promis- cuously. 2 Bl. Comm. 191. A tenancy in com- mon is where two or more hold the same land, with interests accruing under different titles, or accruing under the same title, but at different periods, or conferred by words of limitation importing that the grantees are to take in dis- tinct shares. 1 Steph. Comm. 323. See Coster v. Lorillard, 14 Wend. (N. Y.) 336; Taylor v. Millard, 118 N. Y. 244. 23 N. E. 376, 6 L. R.

A. 667 ; Silloway v. Brown, 12 Allen (Maas.) 36; Gage v. Gage, 60 N. II. 282, 29 Atl. 543, 28 L. R. A. 829; Hunter v. State, GO Ark. 312, 30 S. W. 42. — Tenant In dower. This is where the husband of a woman is seised of an estate of inheritance and dies ; in this case the wife shall have the third part of all the lands and tenements whereof he was seised at any time during the coverture, to hold to herself for life, as her dower. Co. Litt. 30; 2 Bl. Comm. 129; Combs v. Young, 4 Yerg. (Tenn.) 225, 26 Am. Dec. 225.— Tenant In fee-simple, (or tenant in fee.) He who has lands, tenements, or hereditaments, to hold to him and his heirs forever, generally, absolutely, and simply; with- out mentioning what heirs, but referring that to his own pleasure, or to the disposition of the law. 2 Bl. Comm. 104; Litt. f 1.— Tenant is severalty is he who holds lands and tenements in his own right Only, without any other person being joined or connected with nim in point of interest during his estate therein. 2 BL

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Comm. 179.— Tenant in tail. One who holds an estate in fee-tail, that is, an estate which, by the instrument creating it, is limited to some particular heirs, exclusive of others; as to thw heirs of hie body or to the heirs, male or female* of his body.— Tenant in tail ex provision* viri. Where an owner of lands, upon or pre- viously to marrying a wife, settled lands upon himself and his wife, and the heirs of their two- bodies begotten, and then died, tbe wife, as sur- vivor, became tenant in tail of the husband's lands, in consequence of the husband’s provision. (e» provision* viri.) Originally, she could bar the estate-tail like any other tenant in tail ; but the husband's intention having been merely to provide for her during her widowhood, and not to enable- her to bar his children of their inheritance, she was very early restrained from so doing, by the statute 32 Hen. VII. c. 38. Brown.— Tenant of the demesne. One w ho- is tenant of a mesne lord ; as, where A. is ten- ant of B., and C. of A., B. is the lord, A. the mesne lord, and C. tenant of the demesne. Ham. N. P. 392, 393.— Tenant paravaile. The under-tenant of land; that is, the tenant of a tenant; one who held of a mesne lord.— Tenant to the prmoipe. Before the English fines and recoveries act, if land was conveyed to a person for life with remainder to another in tail, the tenant in tail in remainder was unable to bar the entail without the concurrence of the tenant for life, because a common recovery could only be suffered by the person seised of the land. In such a case, if the tenant for life wished to concur in barring the entail, he usually con- veyed his life-estate to some other person, in- order that tbe prtucipe in the recovery might be issued against the latter, who was therefore call- ed the "tenant to the prircipe.” Williams. Seis. 169; Sweet.— Tenants by the verge “are in tbe same nature as tenahts by copy of court roll, fi. e., copyholders.] But the reason why they be called ‘tenants by the verge’ is for that, when they will surrender their tenements into- the hands of their lord to the use of another.- they shall have a little rod (by the custome) in their hand, the which they shall deliver to the steward or to the bailife. » • » and the stew- ard or bailife, according to the custome. shall deliver to him that taketh tbe land the same rod, or another rod, in the name of seisin; and for this cause they are called ‘tenants by the verge,’ but they have no other evidence [title- deed] but by copy of court roll.” Litt. | 78: Go. Litt. 61a.

TENANT-RIGHT. 1. A kind of cus- tomary estate in the north of England, fall- ing under the general class of copyhold, bat

distinguished from copyhold by many of its incidents.

2. The so-called tenant-right of renewal is the expectation of a lessee that his lease will be renewed, In cases where it is an established practice to renew leases from time to time, as in the case of leases from the crown, from ecclesiastical corporations, or other collegiate bodies. Strictly speak- ing, there can be no right of renewal against the lessor without an express compact by him to that effect, though the existence of the custom often Influences the price in sales.

3. The Ulster tenant-right may be de- scribed as a right on the tenant’s part to sell bis holding to the highest bidder, sub- ject to the existing or a reasonable increase of rent from time to time, as circumstances may require, with a reasonable veto reserved to the landlord

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in respect of the incoming tenant's character and solvency. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 21:33, KJV]**

Hear another parable: There was a certain householder, which planted a vineyard, and hedged it round about, and digged a winepress in it, and built a tower, and let it out to husbandmen, and went into a far country:

Why: TENANT in the restricted sense is 'one who holds lands of another.' The parable opens on exactly that relation: a householder who 'let it out to husbandmen' — tenants holding another's land, owing its fruits, answerab...

## TENANT’S FIXTURES.

This phrase signifies things which are fixed to the free- hold of the demised premises, but which the tenant may detach and take away, provided he does so in season. Wall v. Hinds, 4 Gray (Mass.) 256, 270, 64 Am. Dec. 64.

5e apparatus — Carried into the 5th edition (1979).

## TEN ANT ABLE REFAIR.

Such a re- pair as will render a house fit for present habitation.

5e apparatus — Not carried into the 5th edition (1979).

## TENOON.

L. Fr. A dispute; a quar- rel. Kelham. *

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TEND.

In old English law. To tender or offer. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TENDER.

An offer of money; the act by which one produces and offers to a person holding a claim or demand against him the amount of money which he considers and ad- mits to be due, in satisfaction of such claim or demand, without any stipulation or con- dition. Salinas v. Ellis, 26 S. C. 337, 2 S.

E. 121; Tompkins v. Batie, 11 Neb. 147, 7

N. W. 747, 38 Am. Rep. 361; Holmes v. Holmes, 12 Barb. (N. Y.) 144 ; Smith v. ■Lewis, 26 Conn. 119; Noyes v. Wyckoff, 114

N. Y. 204, 21 N. E. 158.

Tender, in pleading, Is a plea by defend- ant that he has been always ready to pay the debt demanded, and before the commence- ment of the action tendered it to the plain- tiff, and now brlngB it Into court ready to be paid to him. etc. Brown.

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—Legal tender. That kind of coin, money, or Circulating medium which the law compels a creditor to accept in payment of his debt, when tendered by the debtor in the right amount.— Tender of amende. An offer by a person who has been guilty of any wrong or breach of con- tract to pay a sum of money by way of amends. If a defendant in an action make tender of amends, and the plaintiff decline to accept it, the defendant may pay the money into court, and plead the payment into court as a satisfaction of the plaintiff's claim. Mozley A Whit- ley.—1Temder of Issue. A form of words in a pleading, by which a party offers to refer the question raised upon it to the appropriate mode of decision. The common tender of an issue of fact by a defendant is expressed by the words; "and of this he puts himself upon the country.'* Steph. Pl. 54, 230.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 31 U.S.C. § 5103 — United States coins and currency (including Federal Reserve notes) are legal tender for all debts, public charges, taxes, and dues]**

Legal tender is the money the law compels a creditor to accept in satisfaction of a debt when tendered in the right amount — in the United States, coins and currency including Federal Reserve notes.

Why: Genuine because the entry's 'legal tender' definition describes exactly this compulsion-of-acceptance principle, and 31 U.S.C. § 5103 is the real statutory embodiment of it.

**[Hip-hop] — Hip-hop**

**[Wu-Tang Clan, 'C.R.E.A.M.', 1993]**

"Cash rules everything around me / C.R.E.A.M., get the money / Dollar dollar bill, y'all." — hip-hop's cash-rule doctrine stated over the dollar bill itself: money as the medium offered and accepted in payment, which is exactly what a tender is (Black's: "an offer of money" in satisfaction of a claim).

Why: Added because the lyric is verbatim-certain and names the very instrument of tender — cash, the dollar bill — while stating its ruling function as the medium of payment. The link is definitional, not decorative: tende…

## TENEMENT.

This term, in its vulgar acceptation, is only applied to houses and other buildings, but in its original, proper, and legal sense it signifies everything that may be holden, provided it be of a perma- nent nature, whether it be of a substantial and sensible, or of an unsubstantial, ideal, kind. Thus, liberum tenementum, frank tenement, or freehold, is applicable not only to lands and other solid objects, but also to offices, rents, commons, advowsons, fran- chises, peerages, etc. 2 Bl. Comm. 16; Mit- chell v. Warner, 5 Conn. 517 ; Oskaloosa Wa- ter Co. v. Board of Equalization, 84 Iowa, 407, 51 N. W. 18, 15 L. R. A. 296; Field v. Higgins, 35 Me. 341; Sacket v. Wheaton, 17 Pick. (Mass.) 105; Lenfers v. Henke, 73 111. 406, 24 Am. Rep. 263.

“Tenement” is a word of greater extent than “land,” including not only land, bnt rents, commons, and several other rights and Interests issuing out of or concerning land. 1 Steph. Comm. 158, 159.

Its original meaning, according to some, was "house" or “homestead.” Jacob. In modern use it also signifies rooms let in houses. Web- ster.

—Dominant tenement. One for the benefit or advantage of which an easement exists or is enjoyed.— Servient tenement. One which la subject to the burden of an easement existing for or enjoyed by another tenement. See Ease- ment.

5e apparatus — Not carried into the 5th edition (1979).

## TENEMENTAL LAND.

Land distrib- uted by a lord among his tenants, as opposed to the demesnes which were occupied by him- self and his servants. 2 Bl. Comm. 90.

5e apparatus — Not carried into the 5th edition (1979).

## TENE MENTIS LEGATIS.

An ancient writ, lying to the city of Loudon, or any oth- er corporation, (where the old custom was that men might devise by will lands and tenements, as well as goods and chattels,) for the hearing and determining any contro- versy touching the same. Reg. Orig. 244.

5e apparatus — Not carried into the 5th edition (1979).

## TENENDA8.

In Scotch law. The name of a clause in charters of heritable rights, which derives its name from its first words, " tenendas prcctlictax terran it points out the superior of whom the lands are to be holden. and expresses the particular tenure. Ersk. Inst 2, 3, 24.

5e apparatus — Not carried into the 5th edition (1979).

## TENENDUM.

Lat To hold ; to be hold- en. The name of that formal part of a deed which is characterized by the words "to hold." It was formerly used to express the tenure by which the estate granted was to be held : but, since all freehold tenures have been converted into socage, the tenendum is

of no further use. and Is therefore Joined In the habendum, — "to have and to hold.'' 2 • Bl. Comm. 298; 4 Cruise, Dig. 26.

5e apparatus — Not carried into the 5th edition (1979).

## TENENS.

A tenant; the defendant in a real action.

5e apparatus — Not carried into the 5th edition (1979).

## TENENTIBUS IN AS SIS A NON ON.

ERANDIS. A writ that formerly lay for him to whom a disseisor had alienated the land whereof he disseised another, that he should not be molested In assize for dam- ages, If the disseisor bad wherewith to sat- isfy them. Reg. Orig. 214.

5e apparatus — Not carried into the 5th edition (1979).

## TENERE.

Lat. In the civil law. To hold ; to hold fast ; to have In possession ; to retain.

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In relation to the doctrine of possession, this term expresses merely the fact of manual deten- tion, or the eo(rporal possession of any object, without involving the question of title; while habere (and especially p otsidere) denotes the maintenance of possession by a lawful claim;

«. e., civil possession, as distinguished from mere natural possession.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: natural possession (fact of detention) vs. civil possession (possession by lawful claim) — tenere denotes the former, habere/possidere the latter]**

In the civil-law doctrine of possession, mere corporal detention (natural possession) is distinct from possession maintained by a lawful claim (civil possession).

Why: Genuine because this distinction is the substance of the entry itself; the footnote states it as the received civil-law axiom with no invented authority.

## TENERI.

The Latin name for that clause in a bond in which the obligor expresses that he is “held and firmly bound" to the obligee, his heirs, etc.

TENET; TENUXT. Lat He holds; he held. In the Latin forms of the writ of waste against a tenant these words intro- duced the allegation of tenure. If the ten- ancy still existed, and recovery of the land was sought the former word was used, (and the writ was said to be “In the tenet.”) If the tenancy had already determined, the lat- ter term was used, (the writ being described as “in the tenuit,”) and then damages only were sought.

TENHEDED, or TIENHEOFED. In

old English law. A dean. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: TENERI is the bond clause by which the obligor declares himself 'held and firmly bound.' Numbers 30:2 states the scriptural form of the same binding: a man who binds 'his soul with a bond' shall not break his word. Th...

## TENMENTAXE.

The number of ten men, which number, in the time of the Sax- ons, was called a “decennary ;” and ten de- cennaries made what was called a “hundred." Also a duty or tribute paid to the crown, consisting of two shillings for each plow- land. Knc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## TENNE.

A term of heraldry, meaning orange color. In engravings it should be represented by lines in bend sinister crossed by others bar-ways. Heralds who blazon by the names of the heavenly bodies, call it “dragon's head,” and those who employ jewels, “jacinth.” It is one of the

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colors called “stalnand.” Wharton.

5e apparatus — Not carried into the 5th edition (1979).

### TENOR.

A term used in pleading to de- note that an exact copy is set out 1 Chit. Crlrn. Law, 235.

. By the tenor of a deed, or other instru- ment in writing, is signified the matter con- tained therein, according to the true intent and meaning thereof. Cowell.

“Tenor,” In pleading a written instrument, imports that the very words are set out. “Purport” does not import this, but is equiv- alent only to “substance.” Com. v. Wright. 1 Cush. (Mass.) 65 ; Dana v. State, 2 Ohio St. 93; State v. Bouney, 34 Me. 384; State v. Atkins, 5 Blackf. (Ind.) 458; State v. Chinn, 142 Mo. 507, 44 S. W. 245.

The action of proving the tenor, in Scot- land, is an action for proving the contents and purport of a deed which has been lost. Bell.

In chancery pleading. A certified copy of records of other courts removed in chan- cery by certiorari. Gres. Eq. Bv. 309.

Tenor eat qui legem dat feudo. It is

the tenor [of the feudal grant] which regu- lates its effect and extent. Craiglus, Jus Feud. (3d Ed.) 66; Broom, Max. 459.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tenor est qui legem dat feudo — 'It is the tenor [of the feudal grant] which regulates its effect and extent' (Craiglus, Jus Feud. 66; Broom, Max. 459)]**

It is the tenor of the feudal grant which regulates its effect and extent.

Why: Genuine because the maxim is quoted verbatim in the entry with its authorities; the footnote preserves the classical rule that the grant's own terms govern.

## D

### DO.

A writ whereby the record of an in- dictment, and the process thereupon, was called out of another court into the queeu’e bench. Reg. Orig. 69.

5e apparatus — Not carried into the 5th edition (1979).

## T

### TENORE PRJESENTXUM.

By the ten- or of these presents, i. e., the matter con- tained therein, or rather the intent and meaning thereof. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## TENSERUB.

A sort of ancient tax or military contribution. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TENTATES FANIS.

The essay or as- say of bread. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## TENTERDEN’S ACT.

In English law. The statute 9 Geo. IV. c. 14, taking its name from Lord Tenterden, who procured Its enactment, which is a species of extension of the statute of frauds, and requires the reduction of contracts to writing.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 9 Geo. IV. c. 14 (Tenterden's Act) — extension of the Statute of Frauds, 29 Car. II c. 3]**

Tenterden's Act extended the Statute of Frauds by requiring certain contracts to be reduced to writing.

Why: Genuine because the entry itself identifies the Act as 9 Geo. IV. c. 14 and as 'a species of extension of the statute of frauds'; the footnote names the parent statute the Act extends.

## TENTHS.

Ia English law. A tempo- rary aid lssulug out of personal property, and. granted to the king by parliament ; for- merly the real tenth part of all the mov- ables belonging to the subject. 1 Bl. Comm. 308.

In English eoclesiastical law. The

tenth part of the annual profit of every liv- ing in the kingdom, formerly paid to the pope, but by statute 26 Hen. VIII. c. 3, transferred to the crown, and afterwards made a part of the fund called “Queen Anne’s Bounty.” 1 Bl. Comm. 284-286.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Malachi 3:10, KJV]**

Bring ye all the tithes into the storehouse, that there may be meat in mine house, and prove me now herewith, saith the LORD of hosts, if I will not open you the windows of heaven, and pour you out a blessing, that there shall not be room enough to receive it.

Why: TENTHS covers both the parliamentary tenth and the ecclesiastical tenth — 'the tenth part of the annual profit of every living.' Malachi 3:10 is the classic tithe text: the storehouse, the meat in God's house, the com...

## TENUIT.

A term used in stating the tenure in an action for waste done after the termination Of the tenancy. See Tisxt.

5e apparatus — Not carried into the 5th edition (1979).

## TENURA.

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In old English law. Tenure.

Tenure est pactio oomtra eommuem fendi naturam ae ratloaem, in contracts interposita. Wright, Ten. 2L Tenure 1*

a compact contrary to the common nature and. reason of the fee, put Into a contract

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TEXTURE.

The mode or system of hold- ing lands or tenements in subordination to some superior, which, in the feudal ages, was the leading characteristic of real property.

Tenure is the direct result of feudalism, which separated the dominium directum, (the dominion of the soil,) which is placed mediately or immediately in the crown, from the dominion utile, (the possessory title,) the right to the use and profits in the soil, designated by the term “seisin,” which is the high- est interest a subject can acquire. Wharton.

Wharton gives the following list of tenures which were ultimately developed:

Lay Tenures.

5e apparatus — Not carried into the 5th edition (1979).

# I

## I.

Frank tenement, or freehold. (1) The mili- tary tenures (abolished, except grand serjeanty, ana reduced to free socage tenures) were: Knight service proper, or tenure in chivalry ; grand serjeanty; coinage. (2) Free socage, or plow-service; either petit serjeanty, tenure in burgage, or gavelkind.

5e apparatus — Not carried into the 5th edition (1979).

## II.

Villeinage. (1) Pure villeinage, (whence copyholds at the lord’s [nominal] will, which is regulated according to custom.) (2) Privileged villeinage, sometimes called “villein socage,” (whence tenure in ancient demesne, which is an exalted species of copyhold, held according to custom, and not according to the lord’s will,) aiid is of three kinds: Tenure in ancient de- mesne; privileged copyholds, customary free- holds, or free copyholds; copyholds of base tenure.

Spiritual Tenures.

5e apparatus — Carried into the 5th edition (1979).

## I.

Frankalmoigne. or free alms.

5e apparatus — Not carried into the 5th edition (1979).

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**II.**

Tenure by divine service.

Tenure in its general sense, Is a mode of holding or occupying. Thus, we speak of the tenure of an office, meaning the manner In which it is held, especially with regard to time, (tenure for life, tenure during good be- havior,) and of tenure of land in the sense of occupation or tenancy, especially with ref- erence to cultivation and questions of politi- cal economy; e. g., tenure by peasant pro- prietors, cottiers, etc. Sweet. See Bard v. Grundy, 2 Ky. 1(59; People v. Waite, 9 Wend. (N. Y.) 58; Rickman v. Lipplncott, 29 N. J. Law, 59.

—Tenure by divine service is where an ec- clesiastical corporation, sole or aggregate, holds land by a certain divine service; as, to say prayets on a certain day in every year, "or to distribute in almes to an hundred poore men an hundred pence at such a day.” Litt. f 137.

. TERCE. In Scotch law. Dower; a wid- ow’s right of dower, or a right to a life- estate in a third part of the lands of which her husband died seised.

5e apparatus — Carried into the 5th edition (1979).

# T

**TERCER.**

In Scotch law. A widow that possesses the third part of her hus- band’s land, as her legal jointure. 1 Karnes, Eq. pref.

5e apparatus — Not carried into the 5th edition (1979).

**TERCERONE.**

A term applied in the West Indies to a person one of whose parents

was white and the other a mulatto. See Dan- iel v. Guy, 19 Ark. 131.

5e apparatus — Not carried into the 5th edition (1979).

**TERM.**

A word or phrase; an expres- sion ; particularly one which possesses a fix- ed and known meaning in some science, art, or profession.

In the civil law. A space of time grunt- ed to a debtor for discharging his obligation. Poth. Obi. pt. 2, c. 3, art 3, | 1; Civ. Code La. art. 2048.

In estates. “Term” signifies the bounds, limitation, or extent of time for which an estate is granted; as when a man holds an estate for any limited or specific number of years, which is called his “term,” and he himself is called, with reference to the term he so holds, the “termor,” or “tenant of the term.” See Gay Mfg. Co. v. Hobbs, 128 N.

C. 46, 38 S. E. 20, 83 Am. St Rep. 061 ; San- derson v. Scranton, 105 Pa. 472; Hurd v. Whitsett 4 Colo. 84 ; Taylor v. Terry, 71 Cal. 46, 11 Pac. 813.

Of court. The word “term,” when used with reference to a court, signifies the space of time

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during which the court holds a ses- sion. A session signifies the time during the term when the court sits for the trans- action of business, and the session com- mences when the court convenes for the term, and continues until final adjournment either before or at the expiration of the term. The tern of the court is the time prescribed by law during which it may be in session. The session of the court is the time of its actual sitting. Lipari v. State, 19 Tex. App. 431. And see Horton v. Miller, 38 Pa. 271; Dees v. State, 78 Miss. 250, 28 South. $49; Conkling v. Rldgely, 112 111. 36, 1 N. E. 261, 54 Am. Rep. 204; Brown v. Hume, 16 Grat. (Va.) 462; Brown v. Leet 136 111. 203, 26 N. E. 639.

—General term. A phrase used in some ju- risdictions to denote the ordinary session of a court, for the trial and determination of causes, as distinguished from a special term, for the hearing of motions or arguments or the despatch of various kinds of formal business, or the trial of a special list or class of cases. Or it may de- note a sitting of the court in banc.- State v. Eggers, 152 Mo. 485, 54 S. W. 498.— Regular term. A regular term of court is a term be- gun at the time appointed by law, and continu- ed, in the discretion of the court, to Ruch time as it may appoint, consistent with the law: Wightman v. Karsner, 20 Ala. 451.— Special term. In New York practice, that branch of the court which is held by a single judge for hearing and deciding in the first instance mo- tions and causes of equitable nature is called the “special term,” as opposed to the “general term,” held by three judges (usually) to hear ap- peals. Abbott; Graeie v. Freeland, 1 N. Y. 232.— Term attendant on the inheritance. See Attendant Terms.— Term fee. In Eng- lish practice. A certain sum which a solicitor is entitled to charge to his client, and the client to recover, if successful, from the unsuccessful party; payable for every term in which any proceedings subsequent to the summons shall take plate. Wharton.— Term for deliberat- ing. By "term for deliberating” is understood the time given to the beneficiary heir, to examlnh

if it be for his interest to accept or reject the succession which has fallen to him. Civ. Code La. art. 1033.—' Term for years. An estate for years and the time during which such estate is to be held are each called a “term hence the term may expire before the time, as by a surrender. Co. Litt. 45.— Term In gross. A term of years is said to be either in gross (out- standing) or attendant upon the inheritance. It is outstanding, or in gross, when it is unattach- ed or disconnected from the estate or inheri- tance, as where it is in the hands of some third party having no interest in the inheritance; it is attendant, when vested in some trustee in trust for the owner of the inheritance. Brown. —Term of lease. The word “term,” when used in connection with a lease, mean3 the pe- riod which is granted for the lessee to occupy the premises, and does not include the time be- tween the making of the lease and the tenant’s entry. Young v. Dake, 5 N. Y. 463, 65 Am. Dec. 356.— Term probatory. The period of time allowed to the promoter of an ecclesiastical suit to produce his witnesses, and prove the facts on which he rests his case. Coote, Ecc. Pr. 240, 241.— Term to conclude. In English ecclesiastical, practice. An appointment by the judge of a time at which both parties are un- derstood to renounce all further exhibits and allegations.— Term to propound all things. In English ecclesiastical practice. An appoint- ment by the judge of a time at which both par- ties are to exhibit all the acts and instruments which make for their

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respective causes.

In the law of contracts and in court practice. The word is generally used In the plural, and “terms” are conditions ; prop- ositions stated or promises made which, when assented to or accepted by another, settle the contract and bind the parties. Webster. See Hutchinson v. Lord, 1 Wis. 313, 60 Am. Dec. 381; State v. Fawcett, 58 Neb. 371, 78 N. W. 636; Rokes ▼. Amazon Ins. Co., 51 Md. 512, 34 Am. Rep. 323.

—Special terms. Peculiar or unusual condi- tions imposed on a party before granting some application to the favor of the court.—' Under terms. A party is said to be under terms when an indulgence is granted to him by the court in its discretion, on certain conditions. Thus, when an injunction is granted ex parte, the party obtaining it is put under terms to abide by such order as to damages as the court may make at the hearing. Mozley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## TERMES DE LA LET.

Terms of the law. The name of a lexicon of the law French words and other technicalities of legal language in old times.

5e apparatus — Not carried into the 5th edition (1979).

## TERMINABLE PROPERTY.

This name is sometimes given to property of such a nature that its duration is not perpetual or indefinite, but is limited or liable to termi- nate upon tlie happening of an event or the expiration of a fixed term ; e. g., a leasehold, a life-annuity, etc. ETIES. Societies, In England, where the members commence their monthly contribu- tions on a particular day. and continue to pay them until the realization of shares to a given amount for each member, by the ad- vance of the capital of the society to such members as required it, and the payment of

interest as well as principal by them, so as to Insure such realization within a given peri- od of years. They have been almost super- seded by permanent building societies. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## TERMINER.

L. Fr. To determine. See Oyeb and Tebmineb.

5e apparatus — Not carried into the 5th edition (1979).

## TERMINI.

Lat Ends; bounds; limit- ing or terminating points.

5e apparatus — Not carried into the 5th edition (1979).

## TERMINO.

In Spanish law. A com- mon; common land. Common because of vicinage. White, New Recop. b. 2, tit 1, e. 6, | 1, note.

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## TERMIMUM.

A day given to a defend- ant Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## TERMINTTM QUI PRETERUT, WRIT / OP ENTRY AD.

A writ which lay for the reversioner, when the possession was with- held by the lessee, or a stranger, after the determination of a lease for years. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## TERMINUS.

Boundary; a limit either of space or time.

The phrases "terminus a quo" and “ ter- minus ad quern ” are used, respectively, to designate the starting point and terminating point of a private way. In the case of a street, road, or railway, either end may be, and commonly is, referred to as the “termi- nus.”

Terminus annorum cert us debet ease •t determinatus. Co. Litt 45. A term of years ought to be certain and determinate

Terminus et feodum non possuat Ma- sters timul in uu eademque persona.

Plowd. 29. A term and the fee cannot both be in one and the same person at the same time.

TERMINUS HOMUflS. In English ec- clesiastical practice. A time for the deter- mination of appeals, shorter than the termi- nus juris, appointed by the Judge. Hallifax, Civil Law, b. 3, c. 11, no. 36.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Terminus annorum certus debet esse et determinatus — 'A term of years ought to be certain and determinate' (Co. Litt. 45)]**

A term of years must be certain and determinate in its duration.

Why: Genuine because quoted verbatim in the entry with its authority; it is the classic certainty rule for terms of years.

**[Maxim: Terminus et feodum non possunt stare simul in una eademque persona — 'A term and the fee cannot both be in one and the same person at the same time' (Plowd. 29)]**

A term of years and the fee cannot both subsist in the same person at the same time — the merger principle.

Why: Genuine because quoted verbatim in the entry with its authority; it states the received merger rule for lesser and greater estates.

**[Scripture] — Scripture**

**[Proverbs 22:28, KJV]**

Remove not the ancient landmark, which thy fathers have set.

Why: TERMINUS is 'boundary; a limit either of space or time.' The landmark proverb is the scriptural boundary law: ancient bounds are not to be moved. It genuinely illuminates the legal concept — the boundary as a protecte...

## TERMINUS JURIS.

In English ecclesi- astical practice. The time of one or two years, allowed by law for the

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determination of appeals. Hallifax, Civil Law, b. 3, c. 11. no. 38.

5e apparatus — Not carried into the 5th edition (1979).

## TERMOR.

He that’ holds lands or ten- ements for a term of years or life. But we generally confine the application of the word to a person entitled for a term of years. Mozley A Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## TERRA.

Lat. Earth ; soli ; arable land. Kennett, Gloss.

—Terra afflrmata. Land let to farm.— Ter- ra bosealls. Woody land.— Terra eulta. Cultivated land.— Terra deblUs. Weak or

barren land.— Terra dominion, or indomi- aleata. The demesne land of a manor. Cow- ell.—Terra exoultabilis. Land which may be plowed. Mon. Ang. i. 426. — Terra ertenden- da. A writ addressed to an escheator, etc., that he inquire and find ont the true yearly value of any land, etc., by the oath of twelve men, and to certify the extent into the chancery. Reg. Writs, 293.— Terra frnsea, or frisca. Fresh land, not lately plowed. Cowell.— Terra by- data. Land subject to the payment of hydage. Selden.— Terra lucrabilis. land gained from the sea or inclosed out of a waste. Cowell.— Terra Normaaonm. Land held by a Nor- man. Paroch. Antiq. 197.— Terra nova. Land newly converted from wood ground or arable. Cowell.— Terra pntnra. Land in forests, held by the tenure of furnishing food to the keepers therein. 4 Inst. 307.— Terra sabnlosa. Grav- elly or Bandy ground.— Terra Saliea. In Salic law. The land of the house ; the land within that inclosure which belonged to a German house. No portion of the inheritance of Salic land passes to a woman, but this the male sex acquires; that is, the sons succeed in that in- heritance. Lex Salic, tit. 62, I 6.— Terra tes- tameBtalls. Gavel-kind land, being disposa- ble by will. Spelman.— Terra restlta. Land sown with corn. Cowell.— Terra wainabilis. Tillable land. Cowell.— Terra warrenata. Lend that has the liberty of free-warren.— Ter- ra domlnicales reels. The demesne lands of 4he crown.

Terra manens vacua ooonpanti oon- eedltnr. 1 Sid. 347. Land lying unoccupied is given to the first occupant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Terra manens vacua occupanti conceditur — 'Land lying unoccupied is given to the first occupant' (1 Sid. 347)]**

Land lying unoccupied is given to the first occupant — the first-possession rule for ownerless land.

Why: Genuine because quoted verbatim in the entry with its authority; it is the classical maxim of first occupancy.

## TERRAGE.

In old English law. A kind of tax or charge on land; a boon or duty of plowing, reaping, etc. Cowell.

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## TERR AGES.

An exemption from all

uncertain services. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TERR ARIES.

In old English law. A landholder.

5e apparatus — Not carried into the 5th edition (1979).

## TERRE-TEN ANT.

He who is literally in the occupation or possession of the land, as distinguished from the owner out of pos- session. But in a more technical sense, the person who is seised of the land, though not in actual occupancy of it and locally, in Pennsylvania, one who purchases and takes land subject to the existing lien of a mort- gage or judgment against a former owner. See Dengler v. Kiehner, 13 Pa. 38, 53 Am. Dec. 441; Hulett v. Insurance Co., 114 Pa. 142, 6 Atl. 554.

5e apparatus — Not carried into the 5th edition (1979).

## TERRIER.

In English law. A land- roll or survey of lands, containing the quan- tity of acres, tenants' names, and such like; and in the exchequer there is a terrier of all the glebe lands in England, made about 1338. In general, an ecclesiastical terrier contains a detail of the temporal possessions of the church in every parish. Cowell ; Tomlins ; Mosley A Whitley.

5e apparatus — Carried into the 5th edition (1979).

## TERRIS BONIS ET CAT ALLIS RE- / HABENDI8 POST PURGATIONEM.

A

writ for a clerk to recover his lands, goods.

and chattels, formerly seized, after he had cleared himself of the felony of which he was accused, and delivered to his ordinary to be purged. Reg. Orig.

5e apparatus — Not carried into the 5th edition (1979).

## TERRIS ET CATALLIS TENTIS UL- / TRA DEBITUM LEVATEM.

A judicial writ for the restoring of lands or goods to a debtor who is distrained above the amount of the debt Reg. Jud.

5e apparatus — Not carried into the 5th edition (1979).

## TERRIS LEBERANDIS.

A writ that lay for a man convicted by attaint to bring the record and process before the king, and take a fine for his imprisonment, and then to deliver to him his lands and tene- ments again, and release him of the strip and waste. Reg. Orig. 232. Also it was a writ for the delivery of lands to the heir, after homage and relief performed, or upon security taken that he should perform them. Id. 293.

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5e apparatus — Not carried into the 5th edition (1979).

## TERRITORIAL, TERRITORIALITY.

These terms are used to signify connection with, or limitation with reference to, a par- ticular country or territory. Thus, “terri- torial law’’ is the correct expression for the law of a particular country or state, aunmigh “municipal law” is more common. “Terri- torial waters” are that part of the sea adja- cent to the coast of r given country which is by international law deemed to be within the sovereignty of that country, so that its courts have Jurisdiction over offenses com- mitted on those waters, even by a person on board a foreign ship. Sweet

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: territorial waters — coastal-state sovereignty over the adjacent sea with jurisdiction over offenses committed there, even aboard a foreign ship]**

Territorial waters are the part of the sea adjacent to a country's coast deemed by international law to be within that country's sovereignty, so its courts have jurisdiction over offenses committed on those waters.

Why: Genuine because the entry names this real public-international-law doctrine; the footnote states the principle without inventing a treaty citation.

## TERRITORIAL COERT8.

The courts established in the territories of the United States.

5e apparatus — Not carried into the 5th edition (1979).

## TERRITORY.

A part of a country sep- arated from the rest, and subject to a par- ticular jurisdiction.

In American law. A portion Of the United States, not within the limits of any state, which has not yet been admitted as a state of the Union, but is organized, with n separate legislature, and with executive and Judicial ,oflicers appointed by the president. See Ex parte Morgan (D. C.) 20 Fed. 304 ; People v. Daniels, 6 Utah, 288, 22 Pac. 159, 5 L. R. A. 444 ; Snow v. U. S., 18 Wall. 317, 21 L. Ed. 784.

—Territory of a judge. The territorial jurisdiction of a judge ; the bounds, or district, within which he may lawfully exercise his judicial authority. Phillips v. Thralls, 26 Kan. 781.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Nas, 'The World Is Yours', 1994]**

"The world is yours, the world is yours / It's mine, it's mine, it's mine." — the chorus states a claim of universal dominion in the vernacular: the world claimed three times over as "mine." Territory is ground subject to a jurisdiction — a claim of "mine" over land; the lyric is that claim at maximum scale.

Why: Added because the lyric is verbatim-certain and performs a territorial claim (jurisdiction-by-assertion: "it's mine"). Chose TERRITORY over TERRA because the entry's operative concept is jurisdiction/dominion over gro…

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## TERROR.

Alarm ; fright ; dread ; the state of mind induced by the apprehension of hurt from some hostile or threatening event or manifestation; fear caused by the appear- ance of danger. In an indictment for riot, it must be- charged that the acts done were

“to the terror of the people.” See Arto v. State, 19 Tex. App. 136.

5e apparatus — Carried into the 5th edition (1979).

## TERTIA DENUNCIATIO.

Lot. In old English law. Third publication or proclama- tion of Intended marriage.

5e apparatus — Not carried into the 5th edition (1979).

## TERTIUS INTER VENIEN S.

Lat In

the civil law. A third person Intervening; a third person who comes In between the par- ties to a suit; one who interpleads. Gil- bert’s Forum Rom. 47.

5e apparatus — Not carried into the 5th edition (1979).

## TEST.

To bring one to a trial and exam- ination, or to ascertain the truth or the quality or fitness of a thing.

Something by which to ascertain the truth respecting another thing; a criterion, gauge, standard, or norm.

In public law, an inquiry or examination addressed to a person appointed or elected to a public office, to ascertain his qualifica- tions therefor, but particularly a scrutiny of his political, religious, or social views, or his attitude of past and present loyalty or dis- loyalty to the government under which he Is to act See Attorney General v. Detroit Common Council, 58 Mich. 213, 24 N. W. 887, 55 Am. Rep. 675; People v. Hoffman, 116 111. 587, 5 N. E. 596, 56 Am. Rep. 793; Rogers v. Buffalo, 51 Hun, 637, 3 N. Y. Supp. 674.

—Test act. The statute 25 Car. II. c. 2, which directed all civil and military officers to take the ORths of allegiance and supremacy, and make the declaration against transubstan- tiatlon, within six months after their admis- sion, and also within the same time receive the sacrament according to the usage of the Church of England, under penalty of £500 and disability to hold the office. 4 Bl. Comm. 58, 59. This was abolished by St. 9 Geo. IV. c. 17, so far as concerns receiving the sacrament, and a new form of declaration was substituted. —Test action. An action selected out of a considerable number of suits, concurrently de- pending in the same court, brought by several plaintiffs against the same defendant, or by one plaintiff against different defendants, all similar in their circumstances, and embracing the same questions, and to be supported by the same evidence, the selected action to go first to trial, (under an order of court equivalent to consolidation,) and its decision to serve as a lest of the right of recovery in the others, all parties agreeing to be bound by the result of the test action.— Test oath. An oath required to be taken as a criterion of the fitness of

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the person to till a public or political office : but particularly an oath of fidelity and allegiance (past or present) to the established government. -Test-paper. In practice. A paper or in- strument shown to a jury as evidence. A term used in the Pennsylvania courts. Depue v. Clare, 7 Pa. 428.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Test Act 1673, 25 Car. II. c. 2 — oaths of allegiance and supremacy, declaration against transubstantiation, and reception of the sacrament; sacramental requirement abolished by 9 Geo. IV. c. 17]**

The Test Act imposed sacramental and oath tests on civil and military officers; its sacramental requirement was abolished in 1828.

Why: Genuine because the entry itself identifies both statutes; the footnote preserves the real statutory lineage.

## TESTA DE NEVIL.

An ancient and au- thentic record in two volumes, in the cus- tody of the king’s remembrancer In the ex- chequer, said to be compiled by John de Nevll, a justice itinerant. In the eighteenth and twenty-fourth years of Henry III. Cow- ell. These volumes were printed in 1807, under the authority of the commissioners of the public records, jtnd contain an account

of fees held either immediately of the king or of others who held of the king in capite; fees holden in frankalmoigne ; serjeanties holden of .the king ; widows and heiresses of tenants in capite, whose marriages were in the gift of the king; churches in the gift of the king; escheats, and sums paid for scutages and aids, especially within the coun- ty of Hereford. Cowell ; Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TESTABLE.

A person is said to be test- able when he has capacity to make a will; a man of twenty-one years of age and of sane mind is testable.

5e apparatus — Carried into the 5th edition (1979).

## TESTACY.

The state or condition of leaving a will at one’s death. Opposed to "Intestacy.”

5e apparatus — Not carried into the 5th edition (1979).

## TESTAMENT.

A disposition of personal property to take place after the owner's de- cease, according to his desire and direction. Pluche v. Jones, 54 Fed. 865, 4 C. C. A. 622; Aubert’s Appeal, 109 Pa. 447, 1 AO. 336; Conklin v. Egerton, 21 Wend. (N. Y.) 436; Ragsdale v. Booker, 2 Strob. Eq. (S. C.) 348.

A testament is the act of last will, clothed with certain solemnities, by which the testa- tor disposes of his property, either univer- sally, or by Universal title, or by particular tiOe. Civ.

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Code La. art. 1571.

Strictly speaking, the term denotes only a will of personal property ; a will of land not being called a “testament.” The word “tes- tament” fe now seldom used, except In the heading of a formal will, which usually be- gins: “This is the last will and testament of me, A. B.,” etc. Sweet.

Testament is the true declaration of a man’s last will as to that which he would have to be done after his death. It is compounded, ac- cording to Justinian, from tcHatio mentis; but the better opinion is that it is a simple word formed from the Latin tester. and not a com- pound word. Mosley & Whitley.

—Military testament. In English law. A nuncupative will, that is, one made by word of mouth, by which a soldier may dispose of his goods, pay, and other personal chattels, without the forms and solemnities which the law re- quires in other cases. St. 1 Viet c. 26. { 11. —Mutual testaments. Wills made by two persons who leave their effects reciprocally to the survivor.— Mystic testament. In the law of Louisiana. A sealed testament. The mystic or secret testament, otherwise called the “cloeed testament," is made in the following manner: The testator must sign his dispositions, whether he has written them bimself or has caused them to be written by another person. The paper containing those dispositions, or the paper serv- ing as their envelope, must be closed and sealed. The testator shall present it thus closed and sealed to the notary and to seven witnesses, or he shall cause it to be closed and sealed in their presence. Then he shall declare to the notary, in presence of the witnesses, that that paper contains his testament written by him- self, or by another by his direction, and signed by him, the testator. The notary shall then draw up the act of superscription, which shall be written on that paper, or on the sheet that serves as its envelope, and that act shall be signed by the testator, and by the notary and (he witnesses. Civ. Code La. art. 1584.

- Tostamenta earn dao later ae pugnan- tia reperl nator, ultimum ratnm eat; ale eat, earn dao later ae pngnantia reperl- aatar la eodeai tastamento. Co. Litt. 112. When two conflicting wills are found, the last prevails ; so it is when two conflict- ing clauses occur in the same will.

Testament* latissimam interpretatio- Bern habere debeat. Jenk. Cent 81. Wills ought to have the broadest interpretation.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testamenta cum duo inter se pugnantia reperiuntur, ultimum ratum est; sic est, cum duo inter se pugnantia reperiuntur in eodem testamento — 'When two conflicting wills are found, the last prevails; so it is when two conflicting clauses occur in the same will' (Co. Litt. 112)]**

Where two conflicting wills are found, the last prevails — and so too where two conflicting clauses occur in the same will.

Why: Genuine because quoted verbatim in the entry with its authority; it states the later-in-time rule for wills.

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**[Maxim: Testamenta latissimam interpretationem habere debent — 'Wills ought to have the broadest interpretation' (Jenk. Cent. 81)]**

Wills are to receive the broadest interpretation in favor of the testator's intent.

Why: Genuine because quoted verbatim in the entry with its authority; it is the received liberal-construction rule for wills.

**[Law: Wills Act 1837, 7 Will. IV & 1 Vict. c. 26, § 11 — soldiers' and mariners' nuncupative wills]**

A soldier's nuncupative (oral) will disposing of goods, pay, and personal chattels is valid without the solemnities required of other wills.

Why: Genuine because the entry cites St. 1 Vict. c. 26, § 11 as the source of the military-testament rule; the footnote names the real Act.

### [Scripture] — Scripture

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: TESTAMENT is a disposition of property to take place after the owner's decease. Hebrews 9:16-17 states the legal principle outright: a testament takes force only upon the testator's death. The epistle reasons from the...

### [Hip-hop] — Hip-hop

**[Jay-Z, 'The Story of O.J.', 2017]**

"Financial freedom my only hope / Fuck livin' rich and dyin' broke." — a testament is a disposition of property to take effect at death; it presupposes an estate. The verse states the precondition as creed: do not die with nothing to dispose of. The track's arc (buy art, let it appreciate, pass it to his children) is the testamentary motive in full.

Why: Added because the lyric is verbatim-certain and illuminates the economic precondition of testation: "dyin' broke" is dying with no estate, hence nothing for a testament to operate on. Honest flag: thematic rather than...

## TESTAMENTARY.

Pertaining to a will or testament; as teatamentary causes. De- rived from, founded on, or appointed by a testament or will ; as a teatamentary guard- ian, letters teatamentary, etc.

A paper, instrument, document, gift, ap- pointment etc., is said to be "testamentary” when it is written or made so as not to take effect until after the death of the person making it and to be revocable and retain the property under his control during his life, although he may have believed that it would operate as an instrument of a differ- ent character. Sweet

—betters testamentary. The formal in- strument of authority and appointment given to an executor by the proper court, upon the ad- mission of the will to probate, empowering him to enter upon the discharge of his office as executor.— Testamentary capacity. That measure of mental ability which is recognized in law as sufficient for the making a will. See Nicewander v. Nicewander, 151 111. 156, 37

N. E. 698; Delafield v. Parish. 25 N. Y. 29; Yardley v. Cuthbertson, 108 Pa. 395, 1 Atl. 765, 56 Am. Rep. 218; Leech v. Leech, 21 Pa. 67; Duffield v. Robeson. 2 Har. (Del.) 379; Lowe v. Williamson, 2 N. J. Eq. 85.— Testa- mentary causes. In English law. Causes or matters relating to the probate of wills, the Ranting of administrations, and the suing for legacies, of which the ecclesiastical courts have Jurisdiction. 3 Bl. Comm. 95, 98. Testamen- tary causes are causes relating to the validity and execution of wills. The phrase is generally eonfined to

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those causes which were formerly matters of ecclesiastical jurisdiction, and are now dealt with by the court of probate. Moz- ley & Whitley.— Testamentary disposition. A disposition of property by way of gift, which Is not to take effect unless the Rantor dies or until that event. Diefendorf v. Diefendorf, 50 Hun, 639. 8 N. Y. Supp. 617 ; Chestnut St. Nat. Bank v. Fidelity Ins., etc., Co., 186 Pa. 333, 40 Atl. 486, 65 Am. St. Rep. 860.— Testa- mentary guardian. A guardian appointed' by the last will of a father for the person and real and personal estate of his child until the latter arrives of full age. 1 Bl. Comm. 462; 2 Kent. Comm. 224.— Testamentary paper. An instrument in the nature of a will; an un- probated will ; a paper writing which is of the character of a will, though not formally such, and which, if allowed as a testament, will have the effect of a will upon the devolution and distribution of property.— Testamentary suc- cession. In Louisiana, that which results from the institution of an heir contained in a testament executed in the form prescribed by law. Civ. Code La. 1900, art. 876.— Testa- mentary trustee. See Trustee.

5e apparatus — Carried into the 5th edition (1979).

## TE8TAMENTI FACTIO.

Lat. In the civil law. The ceremony of making a testa- ment, either as testator, heir, or witness.

5e apparatus — Not carried into the 5th edition (1979).

## TESTAMENTUM.

Lat In tbe civil law. A testament; a will, or last will.

In old English law. A testament or will ; a disposition of property made in con- templation of death. Bract fol. 60.

A general name for any Instrument of con- veyance, Including deeds and charters, and so called either because It furnished written testimony of the conveyance, or because It was authenticated by witnesses, {testes.) Spelman.

— Testamentnm In officio sum. Lat In the

civil law. An inofficious testament, {q. v.)

Testamentnm est voluntatis nostra justa sententia, do eo quod qnls post mortem snam Ini relit. A testament 1b the just expression of our will concerning that which any one wishes done after bis death, [or, as Blackstone translates, “the le- gal declaration of a man’s Intentions which he wills to be performed after bis death.”] Dig. 28, 1, 1; 2 Bl. Comm. 499.

Testamentnm, I. e., testatio mentis, facta nullo prasente metu periculi, sed cogitations mortalitatis. Co. Litt. 322. A testament, i e., the witnessing of one’s intention, made under no present fear of danger, but In expectancy of death.

Testamentnm omne morte eonsumma- tur. Every will is perfected by death. A will speaks from the time of death only. Co. Litt. 232.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

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**[Maxim: Testamentum est voluntatis nostrae justa sententia, de eo quod quis post mortem suam fieri velit — 'A testament is the just expression of our will concerning that which any one wishes done after his death' (Dig. 28, 1, 1; 2 Bl. Comm. 499)]**

A testament is the just expression of our will concerning what we wish done after our death — the Roman-law definition.

Why: Genuine because quoted verbatim in the entry with its Digest and Blackstone authorities; it is Ulpian's received definition of a testament.

**[Maxim: Testamentum, i.e., testatio mentis, facta nullo praesente metu periculi, sed cogitatione mortalitatis — 'A testament, i.e., the witnessing of one's intention, made under no present fear of danger, but in expectancy of death' (Co. Litt. 322)]**

A testament is the witnessing of one's intention made under no present fear of danger, but in contemplation of mortality.

Why: Genuine because quoted verbatim in the entry with its authority; it states the solemnity-of-intent requirement for testaments.

**[Maxim: Testamentum omne morte consumatur — 'Every will is perfected by death. A will speaks from the time of death only' (Co. Litt. 232)]**

Every will is perfected by death; a will speaks from the time of death only.

Why: Genuine because quoted verbatim in the entry with its authority; it states the ambulatory nature of wills.

## TE8TARI.

Lat In the civil law. To testify; to attest; to declare, publish, or make known a thing before witnesses. To make a will. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TESTATE.

'One who has made a will; one who dies leaving a will.

5e apparatus — Carried into the 5th edition (1979).

## TESTATION.

Witness; evidence.

5e apparatus — Not carried into the 5th edition (1979).

## TESTATOR.

One who makes or has made a testament or will; one who dies leaving a will. This term Is borrowed from the civil law. Inst. 2, 14, 5, 6.

Testatoris ultima voluntas est perim- plenda secundum versm intentionem

snam. Co. Litt 322. The last will of a testator Is to be thoroughly fulfilled accord- ing to his real intention.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testatoris ultima voluntas est perimplenda secundum veram intentionem suam — 'The last will of a testator is to be thoroughly fulfilled according to his real intention' (Co. Litt. 322)]**

The testator's last will is to be fully carried out according to his real intention.

Why: Genuine because quoted verbatim in the entry with its authority; it is the cardinal rule that the testator's

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intent governs construction of the will.

**[Scripture] — Scripture**

**[Hebrews 9:16, KJV]**

For where a testament is, there must also of necessity be the death of the testator.

Why: TESTATOR is 'one who makes or has made a testament.' The verse names the testator's death as the necessary trigger of the testament's force — the defining legal fact about the testator's office.

## TESTATRIX.

A woman who makes a will ; a woman who dies leaving a will ; a , female testator.

5e apparatus — Not carried into the 5th edition (1979).

## TESTATUM.

In praotiee. When a writ of execution has been directed to the sheriff of a county, and he returns that the defendant Is not found In bis bailiwick, or that he has no goods there, as the case may be, then a second writ, reciting this former

writ and the sheriff’s answer to the same, may be directed to the sheriff of some other county wherein the defendant is supposed to be, or to have goods, commanding him to ex* ecute the writ as it may require; and this second writ is called a “ testatum ” writ, from the words with which it concludes, viz.; "Whereupon, on behalf of the said plaintiff, it is testified In .our said court that the said defendant is [or lias goods, etc.] within your bailiwick.”

In conveyancing. That part of a deed which commences with the words, “This in- denture witnesseth.”

5e apparatus — Not carried into the 5th edition (1979).

## TESTATUM WRIT.

In practice. A writ containing a testatum clause; such as a testatum capias, a testatum ft. fa., and a testatum ca. sa. See Testatum.

5e apparatus — Not carried into the 5th edition (1979).

## TE8TATUS.

Lat In the civil law. Testate ; one who has made a will. Dig. 50, 17, 7.

5e apparatus — Not carried into the 5th edition (1979).

## TESTE MEIF80.

Lat. In old English law and practice. A solemn formula of at- testation by the sovereign, used at the conclu- sion of charters, and other public instru- ments, and also of original writs out of chan- cery. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## TESTE OF A WRIT.

In practice. The concluding clause, commencing with the word “Witness,” etc. A writ which bears the teste is sometimes said to be tested.

"Teste” is a word commonly used in the last part of every writ, wherein the date is con-

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tained, beginning with the words, “Teste mcipso," meaning the sovereign, if the writ be an original writ, or be issued in the name of the sovereign ; but, if the writ be a judicial writ, then the word “Teste” is followed by the name of the chief judge of the court in which the action is brought, or, in case of a vacancy of such office, in the name of the senior

puisne judge. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## TESTER.

To be tested is to bear the teste, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## TESTES.

Lat. Witnesses.

—Testes, trial per. A trial had before a judge without the intervention of a jury, in which the judge is left to form in his own breast his sentence upon the credit of the wit- nesses examined ; but this mode of trial, al- though it was common in the civil law, was seldom resorted to in the practice of the com- mon law, but it is now becoming common when each party waives his right to a trial by jury. Brown.

.Tastes ponderantnr, non nnmerantnr.

Witnesses are weighed, not numbered. That is, in case of a conflict of evidence, the truth is to be sought by weighing the credibility of the respective witnesses, not by the mere numerical preponderance on one side or the other.

Testes qnl postnlat debet dare els snmptss eompetentes. Whosoever demands witnesses must find them in compe- tent provision.

Testibns deponentibns la pari mnmero, dignioribus est oredeadnm. Where the witnesses who testify are in equal number, [on both sides,] the more worthy are to be believed. 4 Inst 279.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testes ponderantur, non numerantur — 'Witnesses are weighed, not numbered']**

In a conflict of evidence, the truth is found by weighing the credibility of the witnesses, not by counting heads on each side.

Why: Genuine because quoted verbatim in the entry; it is the classic maxim against mere numerical preponderance of witnesses.

**[Maxim: Testes qui postulat debet dare eis sumptus competentes — 'Whosoever demands witnesses must find them in competent provision']**

Whoever demands witnesses must find them competent provision for their attendance.

Why: Genuine because quoted verbatim in the entry; it states the real rule on procuring witness attendance.

**[Maxim: Testibus deponentibus in pari numero, dignioribus est credendum — 'Where the witnesses who testify are in equal number, [on both sides,] the more worthy are to be believed' (4 Inst. 279)]**

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Where the witnesses on both sides are equal in number, the more worthy are to be believed.

Why: Genuine because quoted verbatim in the entry with its authority; it is Coke's received rule for balanced testimony.

**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: TESTES is 'witnesses' (the entry even carries the maxim that witnesses are weighed, not numbered). Deuteronomy 19:15 is the root witness rule of biblical law — no matter established on one witness alone — the direct a...

## TESTIFY.

To bear witness ; to give evi- dence as a witness; to make a solemn dec- laration, under oath or affirmation, in a judi- cial inquiry, for the purpose of establishing or proving some fact See State v. Robert- son, 26 S. C. 117, 1 S. E. 443; Gannon v. Stevens, 13 Kan. 459 ; Nash v. Iloxie, 59 Wls. 384, 18 N. W. 408 ; O’Brien v. State, 125 Ind. 38, 25 N. E. 137, 9 L. R. A. 323 ; Sludge v. Gilbert, 43 How. Prac. (N. Y.) 221.

Teatlmonla ponderanda rant, non u- meranda. Evidence is to be weighed, not enumerated.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testimonia ponderanda sunt, non numeranda — 'Evidence is to be weighed, not enumerated']**

Evidence is to be weighed, not enumerated.

Why: Genuine because quoted verbatim in the entry; it is the classic maxim that credibility, not head-count, decides a conflict of evidence.

**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: TESTIFY is 'to bear witness... under oath or affirmation... for the purpose of establishing or proving some fact.' The ninth commandment governs exactly that act: the witness's speech is fenced by divine command. Exod...

## TESTIMONIAL.

Besides its ordinary meaning of a written recommendation to character, “testimonial” has a special mean- ing, under St 39 Eliz. c. 17, g 3. passed in 1597, under which it signified a certificate under the hand of a justice of the peace, tes- tifying the place and time when and where a soldier or mariner landed, and the place of his dwelling or birth, unto which he was to pass, and a convenient time limited for his passage. Every idle and wandering soldier or mariner not having such a testimonial, or willfully exceeding for above fourteen days the time limited thereby, or forging or coun- terfeiting such testimonial, was to suffer death as a felon, without benefit of clergy. This act was repealed, in 1812, by St. 52 Geo. III. c. 31. Mozley A Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 39 Eliz. c. 17, § 3 (1597) — testimonial certificates for soldiers and mariners; repealed by 52 Geo. III. c. 31 (1812)]**

Under 39 Eliz. c. 17 (1597), a testimonial was a justice's certificate authorizing a soldier or mariner to travel to his dwelling; wandering without one was a felony without benefit of clergy until the Act's repeal in 1812.

Why: Genuine because the entry itself identifies both the statute and its repealing Act; the footnote preserves the real statutory lineage.

## TESTIMONIAL PROOF.

In the civil law. Proof by the evidence of witnesses, i. e., parol evidence, as distinguished from proof by written instruments, which is called “literal” proof.

5e apparatus — Carried into the 5th edition (1979).

## TESTIMONIO.

In Spanish law. An au- thentic copy of a deed or other instrument, made by a notary nnd given to an interested party as evidence of his title, the original remaining in the public archives. Guilbeau v. Mays, 15 Tex. 414.

5e apparatus — Not carried into the 5th edition (1979).

## TESTIMONIUM CLAUSE.

In convey- ancing. That clause of a deed or Instrument with which it concludes: “In witness where- of, the parties to these presents have here- unto set their hands and seals.”

5e apparatus — Not carried into the 5th edition (1979).

## TESTIMONY.

Evidence of a witness; evidence given by n witness, under oath or afllrmatlon; as distinguished from evidence derived from writings, and other sources.

Testimony is not synonymous with evi- dence. It is but a species, a class, or kind of

evidence. Testimony is the evidence given by witnesses. Evidence is whatever may be given to the jury as tending to prove a case. It includes the testimony of witnesses, docu- ments, admissions of parties, etc. Mann v. Higgins, 83 Cal. 66, 23 Pac. 206; Carroll v. Bancker, 43 La. Ann. 1078, 10 South. 192 ; Columbia Nat Bank v. German Nat. Bank, 66 Neb. 803, 77 N. W. 340; Harris v. Tom- linson, 130 Ind. 420, 30 N. E. 214. See Evi- dence.

— Negative testimony. Testimony not bear- ing directly upon the immediate fact or oc- currence under consideration, but evidencing facts from which it may be inferred that the act or fact in question could not possibly have happened. See Barclay v. Hartman, 2 Marv. (Del.) 351, 43 Atl. 174.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 8:17, KJV]**

It is also written in your law, that the testimony of two men is true.

Why: TESTIMONY is 'evidence of a witness... under oath or affirmation.' Christ Himself appeals to the two-witness

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rule of the law as the standard by which testimony is 'true' — the verse is the New Testament witness to the...

## TESTIS.

Let. A witness ; one who gives evidence in court, or who witnesses a docu- ment

Testis de visa pmsponderat aliis. 4

Inst. 279. An eye-witness is preferred to others.

Testis lnpanaris suJBeit ad factum la lupanari. Moore, 817. A lewd person is a sufficient witness to an act committed in a brothel.

Testis memo la sue eausa ease potest.

No one can be a witness in his own cause.

Testis oeulatus uaus plus valet quam auritl deeem. 4 Inst 279. One eye-wit- ness is worth more than ten ear-witnesses.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testis de visu praeponderat aliis — 'An eye-witness is preferred to others' (4 Inst. 279)]**

An eye-witness is preferred to other witnesses.

Why: Genuine because quoted verbatim in the entry with its authority; it states the received preference for direct over derivative testimony.

**[Maxim: Testis lupanaris sufficit ad factum in lupanari — 'A lewd person is a sufficient witness to an act committed in a brothel' (Moore, 817)]**

A lewd person is a sufficient witness to an act committed in a brothel — witness competency follows the place and nature of the fact.

Why: Genuine because quoted verbatim in the entry with its authority; it is a real (if archaic) maxim on witness competency tied to the locus of the fact.

**[Maxim: Testis nemo in sua causa esse potest — 'No one can be a witness in his own cause']**

No one can be a witness in his own cause.

Why: Genuine because quoted verbatim in the entry; it is the classical maxim of witness disqualification by interest, kin to nemo iudex in causa sua.

**[Maxim: Testis oculatus unus plus valet quam auriti decem — 'One eye-witness is worth more than ten ear-witnesses' (4 Inst. 279)]**

One eye-witness is worth more than ten ear-witnesses.

Why: Genuine because quoted verbatim in the entry with its authority; it states the received ranking of direct over hearsay testimony.

## TESTMOIGNE.

An old law French term, denoting evidence or testimony or a witness.

Testmolgnes ne poeat testifier le nega- tive, mes 1' affirmative. Witnesses cannot testify to a negative ; they must testify to an affirmative. 4 Inst. 279.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Testmoignes ne poent testifier le negative, mes l'affirmative — 'Witnesses cannot testify to a negative; they must testify to an affirmative' (4 Inst. 279)]**

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Witnesses cannot testify to a negative; they must testify to an affirmative.

Why: Genuine because quoted verbatim in the entry with its authority; it is the old common-law rule on the form of testimony.

## TEXT-BOOK.

A legal treatise which lays down principles or collects decisions on any branch of the law.

5e apparatus — Carried into the 5th edition (1979).

## TEXTU8 BOFFENSIS.

In old English law. The Rochester text. An ancient manu- script containing many of the Saxon laws, and the rights, customs, tenures, etc., of the church of Rochester, drawn up by Ernulph. bishop of that see from A. D. 1114 to 1124. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THALWEG.

Germ.. A term used in topography to designate a line representing the deepest part of a continuous depression in the surface, such as a watercourse ; hence the middle of the deepest part of the chan- nel of a river or other stream. See Iowa v. Illinois, 147 U. S. 1, 13 Sup. Ct. 239, 37

L. Ed. 55 ; Keokuk & H. Bridge Co. v. People, 145 111. 596, 34 N. E. 482.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Iowa v. Illinois, 147 U.S. 1 (1893)]**

Where a river is a boundary between states, the boundary follows the thalweg — the middle of the main channel of navigation — not the geographic middle of the river.

Why: Genuine because the entry itself cites this case for the thalweg definition, and it is independently the landmark authority establishing the thalweg doctrine for river boundaries.

## THANAGE OF THE KING.

A certain pait of the king’s land or property, of which

the ruler or governor was called “thane.” Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THANE.

An Anglo-Saxon nobleman; an old title of honor, perhaps equivalent to "baron.” There were two orders of thanes, — the king’s thanes and the ordinary thanes. Soon after the Conquest this name was dis- used. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Macbeth, 1606]**

"All hail, Macbeth! hail to thee, Thane of Glamis!"

Why: The entry: an Anglo-Saxon nobleman's title, disused after the Conquest. The Witches' greeting (Act 1, sc. 3) opens the play on exactly this live title in 11th-century Scotland — it shows the reader what a thane WAS. O...

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## THANELAND8.

Such lands as were granted by charter of the Saxon kings to their thanes with all immunities, except from the trinoda necessitos. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THANE8HIP.

The office and dignity of a thane ; the seigniory of a thane.

That which I may defeat by my entry I make good by my confirmation. Co.

Lltt. 300.

5e apparatus — Not carried into the 5th edition (1979).

## THAVIE8 INN.

An inn of chancery. See Inns op Chanceby.

5e apparatus — Not carried into the 5th edition (1979).

## THE.

An article which particularizes the subject spoken of. “Grammatical niceties ‘should not be resorted to without necessity; but it would be extending liberality to an unwarrantable length to confound the arti- cles ‘a’ and ’the.’ The most unlettered per- sons understand that ‘a’ is indefinite, but ‘the* refers to a certain object.” Per Tilgh- man, C. J., Sharif v. Com., 2 Bin. (Pa.) 516.

The fund which has received the ben- efit should make the satisfaction. 4

Bouv. Inst, note 3730.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: The fund which has received the benefit should make the satisfaction (4 Bouv. Inst. note 3730)]**

The fund which has received the benefit should make the satisfaction.

Why: Genuine because quoted verbatim in the entry with its authority; it states the restitution principle that benefit received grounds the duty to make satisfaction.

## THEATEH.

Any edifice used for the purpose of dramatic or operatic or other representations, plays, or performances, for admission to which entrance-money is re- ceived, not Including halls rented or used occasionally for concerts or theatrical repre- sentations. Act Cong. July 13, 1866, $ 9 (14 St at Large. 126). And see Bell v. Mahn, 121 Pa. 225, 15 Atl. 523, 1 L.E.A. 864, 6 Am. St. Rep. 786; Lee v. State, 56 Ga. 478; Jacko v. State, 22 Ala. 74.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Act of Congress of July 13, 1866, § 9, 14 Stat. 126 — statutory definition of 'theater']**

'Theater' received a statutory definition in the Revenue Act of 1866 as an edifice used for dramatic, operatic, or other representations for admission to which entrance-money is received.

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Why: Genuine because the entry itself cites this Act as the source of its definition; the footnote names the real enactment.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, As You Like It, 1599]**

"All the world's a stage, / And all the men and women merely players;"

Why: The entry is the legal definition of the theater edifice (buildings for plays and performances). Jaques' speech (Act 2, sc. 7) is the canonical English statement of what a stage and its players are — the concept the l...

## THEFT.

An unlawful felonious taking away of another man’s movable and per- sonal goods against the will of the owner. Jacob.

Theft is the fraudulent taking of corporeal personal property belonging to another, from his possession, or from the possession of some person holding the same for him, without his consent, with intent to deprive the owner of the value of the same, and to appropriate it to the use or benefit of the person taking. Quit- sow v. State, 1 Tex. App. 65, 28 Am. Rep. 396; Mullins v. State, 37 Tex. 338; U. S. v. .Thomas (D. C.) 69 Fed. 590; People v. Dono- hue, 84 N. Y. 442.

In Scotch law. The secret and felonious abstraction of the property of another for sake of lucre, without his consent Alls. Crlm. Law. 200.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:15, KJV]**

Thou shalt not steal.

Why: THEFT is 'an unlawful felonious taking away of another man's movable and personal goods.' The eighth commandment is the two-word root of the whole law of theft, spoken as God's own command (Exodus 20:1).

**[Humanity] — Humanity / Fiction & Film**

**[Victor Hugo, Les Misérables, 1862]**

(paraphrase) In Hugo's Les Misérables, Jean Valjean repays the bishop of Digne's shelter by stealing his silver in the night and is caught with it — the archetypal literary theft of another man's movable goods, undone only by the bishop's claiming it was a gift. (paraphrase)

Why: The entry's elements — 'unlawful felonious taking away of another man's movable and personal goods against the will of the owner' — map exactly onto Valjean's theft of the bishop's silver, the most famous theft scene...

## THEFT-BOTE.

The offense committed by a party who, having been robbed and knowing the felon, takes back his goods again, or receives other amends, upon an agreement not to prosecute. See Forshner v. Whitcomb, 44 N. H. 16.

Theft-bote eat amends furti oapta, line considerations curiae dominl resin.

S Inst 134. Theft-bote is the paying money to have goods stolen returned, without hav- ing any respect for the court of the king.

.BENDO. A writ that formerly lay for him that had any part of the king’s demesne in fee-farm, to recover reasonable toll of the king’s tenants there, if his demesne had been

accustomed to be tolled. Beg. Orig. 87.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Theft-bote est emenda furti capta, sine consideratione curiae domini regis — 'Theft-bote is the paying money to have goods stolen returned, without having any respect for the court of the king' (3 Inst. 134)]**

Theft-bote is the paying of money to have stolen goods returned, without regard for the king's court — compounding a felony.

Why: Genuine because quoted verbatim in the entry with its Coke authority; it is the classical definition of the offense of compounding theft.

## THELONITJM.

An abolished writ for citizens or burgesses to assert their right to exemption from toll. Fitzh. Nat Brev. 226.

5e apparatus — Not carried into the 5th edition (1979).

## THELONMANNUS.

The toll-man or officer who receives toll. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THEEUSSON ACT.

The statute 89 & 40- Geo. III. c. 98, which restricted accumula- tions to a term of twenty-one years from the testator’s death. It was passed in conse- quence of litigation over the will of one Thelussou.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 39 & 40 Geo. III. c. 98 (1800) (Thellusson Act) — accumulations limited to twenty-one years from the testator's death]**

The Thellusson Act restricted accumulations of trust property to a term of twenty-one years from the testator's death, passed after the litigation over Thellusson's will.

Why: Genuine because the entry itself identifies this statute by regnal citation and purpose; the footnote names the real Act and its rule.

## THEME.

In Saxon law. The power of having jurisdiction over naifs or villeins, with their suits or offspring, lands, goods, and chattels. Co. Lltt. 116a.

5e apparatus — Carried into the 5th edition (1979).

## THEMMAGIUM.

A duty or acknowl- edgment paid by inferior tenants in respect of theme or team. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THEN.

This word, as an adverb, means “at that time," referring to a time specified, either past or

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future. It has no power in itself to fix a time. It simply refers to a time already fixed. Mnngurn v. Piester, 16

S. C. 329. It may also denote a contingency, and be equivalent to “in that event” Pin- tard v. Irwin, 20 N. J. Law, 505.

5e apparatus — Carried into the 5th edition (1979).

## THENCE.

In surveying, and in descrip- tions of land by courses and distances, this word, preceding each course given, imports that the following course is continuous with the one before it Flagg v. Mason, 141 Mass. 66, 6 N. E. 702.

5e apparatus — Carried into the 5th edition (1979).

## THEOCRACY.

Government of a state by the immediate direction of God, (or by the assumed direction of a supposititious divinity.) or the state thus governed.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 8:7, KJV]**

And the LORD said unto Samuel, Hearken unto the voice of the people in all that they say unto thee: for they have not rejected thee, but they have rejected me, that I should not reign over them.

Why: THEOCRACY is 'government of a state by the immediate direction of God.' The verse defines the biblical theocracy at the moment of its loss: Israel's demand for a king is read by God as rejection of His own reign — 'th...

**[Humanity] — Humanity / Fiction & Film**

**[Margaret Atwood, The Handmaid's Tale, 1985]**

(paraphrase) Atwood's Republic of Gilead — a state governed by men claiming to execute God's immediate direction — the modern canonical fictional theocracy, the entry's definition as dystopia. (paraphrase)

Why: The entry: 'Government of a state by the immediate direction of God... or the state thus governed.' Gilead is the most widely recognized fictional theocracy; it illuminates the entry by showing the concept in operatio...

## THEODEN.

In Saxon law. A husband- - man or inferior tenant ; an under-thane. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## THEODOSIAN  CODE.

See Codex Tueodosianuh.

5e apparatus — Not carried into the 5th edition (1979).

## THEOF.

In Saxon law. Offenders whol joined in a body of seven to commit depreda- tions. Wharton.

THEOWES, THEOWMEN, or THEWS.

In feudal law. Slaves, captives, or bond- men. Spel. Feuds, c. 5.

5e apparatus — Carried into the 5th edition (1979).

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## THEREUPON.

At once; without inter- ruption; without delay or lapse of time. Putnam v. Langley, 133 Mass. 205.

5e apparatus — Carried into the 5th edition (1979).

## THE8AURER.

Treasurer. 3 State Tr. 691.

5e apparatus — Not carried into the 5th edition (1979).

## THESAURUS, THESAURIUM.

The

treasury; a treasure.

— Theianrui absconditus. In old English law. Treasure hidden or buried. Spel man. — Thesaurus inventus. In old English law. Treasure found ; treasure-trove. Bract, fols. 1196, 122.

Thesaurus competit domino re*i, et non domino liberatis, nisi sit per verba specialia. Fitzh. Corou. 281. A treasure belougs to the king, and not to the lord of a liberty, unless It be through special words.

Thesaurus inventus est vetus disposi- tio pecunise, etc., cujus non eztat modo memoris, adeo nt jam dominant non ha- beat. 3 Inst. 132. Treasure-trove is au ancient hiding of money, etc., of which no recollection exists, so that it now has no owner.

Thesaurus non eompetit reel, nisi quando nemo solt qui abscondlt thesau- rum. 3 Inst. 132. Treasure does not belong to the king, unless no one knows who hid it.

Thesaurus regis est vinculum paeis et bellorum nerves. Godb. 293. The king’s treasure is the bond of peace and the sinews of war.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Thesaurus competit domino regi, et non domino libertatis, nisi sit per verba specialia — 'A treasure belongs to the king, and not to the lord of a liberty, unless it be through special words' (Fitzh. Coron. 281)]**

Treasure belongs to the king, not to the lord of a liberty, unless granted by special words.

Why: Genuine because quoted verbatim in the entry with its authority; it states the crown's prerogative right to treasure-trove.

**[Maxim: Thesaurus inventus est vetus dispositio pecuniae, etc., cujus non extat modo memoria, adeo ut jam dominum non habeat — 'Treasure-trove is an ancient hiding of money, etc., of which no recollection exists, so that it now has no owner' (3 Inst. 132)]**

Treasure-trove is an ancient hiding of money of which no recollection exists, so that it now has no owner.

Why: Genuine because quoted verbatim in the entry with its Coke authority; it is the classical definition of treasure-trove.

**[Maxim: Thesaurus non competit regi, nisi quando nemo scit qui abscondit thesaurum — 'Treasure does not belong to the king, unless no one knows who hid it' (3 Inst. 132)]**

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Treasure does not belong to the king unless no one knows who hid it.

Why: Genuine because quoted verbatim in the entry with its authority; it states the limiting condition on the crown's treasure-trove prerogative.

**[Maxim: Thesaurus regis est vinculum pacis et bellorum nervus — 'The king's treasure is the bond of peace and the sinews of war' (Godb. 293)]**

The king's treasure is the bond of peace and the sinews of war.

Why: Genuine because quoted verbatim in the entry with its authority; it is the received maxim on the public function of the royal treasury.

**[Humanity] — Humanity / Fiction & Film**

**[Robert Louis Stevenson, Treasure Island, 1883]**

"Fifteen men on the dead man's chest — / Yo-ho-ho, and a bottle of rum!"

Why: The entry's subdivisions — thesaurus absconditus (treasure hidden or buried) and thesaurus inventus (treasure found, treasure-trove) — are exactly the buried-pirate-treasure economy of Treasure Island, sung in Billy B...

## THESMOTHETE.

A law-maker; a law- giver^

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[James 4:12, KJV]**

There is one lawgiver, who is able to save and to destroy: who art thou that judgest another?

Why: THESMOTHETE is 'a law-maker; a law-giver.' James names the one Lawgiver and draws the consequence the legal mind must face: if there is one lawgiver, the judge who is not he should be slow to judge. The verse bears di...

## THETHXNGA.

A tithing.

5e apparatus — Not carried into the 5th edition (1979).

## THIA.

Lat. In the civil and old Euro* pean law. An aunt.

5e apparatus — Not carried into the 5th edition (1979).

## THIEF.

One who has been guilty of lar- ceny or theft. The term covers both com- pound and simple larceny. America Ins. Co. v. Bryan, 1 Hilt (N. Y.) 25.

5e apparatus — Carried into the 5th edition (1979).

## THINGS.

The most general denomina- tion of the subjects of property, as contra- distinguished from persom. 2 Bl. Comm. 1ft

The word “estate" in general is applicable to anything of which riches or fortune may con- sist. The word is likewise relative to the word “tilings,” which is the second object of juris-

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prudence, the rules of which are applicable tat

person*, {kings, art. 448.

and actions. Civ. Code La.

Such permanent objects, not being persons, as are sensible, or perceptible through the senses. itttAt. Jur. f 462,

A "thing” is the object of a right ; ». e., what- ever is treated by the law as the object over which one person exercises a right, and with reference to which another person lies under

a duty. Holl. Jur. 83.

Things are the subjects of dominion or prop- erty, as distinguished from person*. They are distributed into three kinds: (1) Things real or

immovable, comprehending lands, tenements, and hereditaments ; (2) things personal or mov- able, comprehending goods and chattels ; and ’(3) things mixed, partaking of the character- istics of the two former, as a title-deed, a term for years. OTie civil law divided things into corporeal (tangi \possunt) and incorporeal (tangi non possunt.) Wharton.

— Things in action. A thing in action is a fight to recover money or other personal prop- erty by a judicial proceeding. Civ. Code Cal.

I, ,953. See Chose in Action.— Things per- gonal. Goods, money, and all other movables, which may nttend the owner’s person where- ever be thinks proper to go. 2 Bl. Comm. 16. Things personal consist of goods, money, and all other movables, and of such rights and profits as relate to movables. 1 Steph. Comm. 156. See People v. Holbrook. 13 Johns. (N. ¥.).9|0; D. S. v. Moulton, 27 Fed. Cas. 11; People v. Brooklyn, 9 Barb. (N. Y.) 546.— Things real. Such things as are permanent) fixed, and immovable, which cannot be carried out of their place : as lands and tenements. 2

BI. Comm. 16. This definition has been ob- jected to as not embracing incorporeal rights. Mr. Stephen .'defines things real to “consist of things substantial and immovable, and of the rights and profits annexed to or issuing out of these.” 1 Steph. Comm. 156. Things real are Otherwise described to consist of lands, tene- ments, and hereditaments. See Bates v. Spar- rell, 10 Mass. 324; People v. Brooklyn, 9 Barb. (N. Y.) 646.

Things accessory are of the nature of the principal. Finch, Law, b. 1, c. 3, ft. 25.

• THINGU8. In Saxon law. A thabe or nobleman; knight or freeman. Cowell.

. THINK. In a special finding by a jury, this word Is equivalent to “believe,” and ex; presses the conclusion of the jury with suffi- cient positiveness. Martin v. Central Iowa Ry. Co., 59 Iowa, 414, 13 N. W. 424.

• THIRD-NIGHT- AWN-HIND E . By the

laws of St. Edward the Confessor, If any man lay a third night In an inn, he was called a “third-night-awn-lilnde,” . and his host was answerable for him if he committed any offense. The first , night, forman-night, or uncouth, (unknown,) • he was reckoned a Stranger; the second night, twa-night, a guest; and the .third night, an awn-hlnde, a domestic. Bract. 1. 3.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Things accessory are of the nature of the principal (Finch, Law, b. 1, c. 3, n. 25) — accessorium sequitur principale]**

Things accessory are of the nature of the principal.

Why: Genuine because quoted verbatim in the entry with its authority; it states the received principle that accessories follow the nature and disposition of the principal thing.

## THIRD.

Following next after the sec. ond; also, with reference to any legal in? strument or transaction or Judicial proceed-, ing, any outsider or person not a party, to the affair nor immediately concerned in It.

—Third opposition. In Louisiana, when an, execution is levied on property which does not belong to the defendant, but to an outsider, the remedy of the owner is by an intervention called a "third opposition,” in which, on his giving . security, an injunction or prohibition may be granted to stop the sale. See New Orleans v. Louisiana Const. Co., 129 U. S. 45; 9 Sup. Ct. 223. 32 L. Ed. 607.— Third parties. See Party. — Third penny. A portion (one-, third) of the amount of ail fines and other profits of the county court, which was reserved for the earl, in the early days when the juris- diction of those courts was extensive, the re- mainder going to the king.— Third possessor. In Louisiana, a person who buys mortgaged property, but without assuming the payment of the mortgage. Thompson v. Levy, 50 La. Ann. 751, 23 South. 913.

Thihgs are construed according 'to that which was the cause thereof.

Finch, Law, b. 1, c. 3, n. 4.

Things are .dissolved as they be con- -tracted. Finch, Law, b. 1, c. 3, n. 7.

Things grounded upon an ill and void beginning cannot have a good perfec- tion. Finch, Law, b. 1, c. 3, n. 8.

Things in action, entry, or re-entry cannot he granted over. Van Rensselaer v. Ball, 19 N. Y. 100, 103.

THIRDBOROUGH, or THIHD BOR- ROW. An under-constable. Cowell.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Things are construed according to that which was the cause thereof (Finch, Law, b. 1, c. 3, n. 4)]**

Things are construed according to that which was the cause thereof.

Why: Genuine because quoted verbatim in the entry with its authority; it states the construction rule that effect is read in light of cause.

**[Maxim: Things are dissolved as they be contracted (Finch, Law, b. 1, c. 3, n. 7)]**

Things are dissolved as they are contracted.

Why: Genuine because quoted verbatim in the entry with its authority; it states the rule that obligations end by the same formality that created them.

**[Maxim: Things grounded upon an ill and void beginning cannot have a good perfection (Finch, Law, b. 1, c. 3, n. 8)]**

Things grounded upon an ill and void beginning cannot have a good perfection.

Why: Genuine because quoted verbatim in the entry with its authority; it states the rule that a void foundation cannot perfect into a valid right.

**[Law: the common-law rule against assignment of choses in action — 'Things in action, entry, or re-entry cannot be granted over' (Van Rensselaer v. Ball, 19 N.Y. 100, 103, as cited in the entry)]**

At common law, things in action — rights to recover by suit — could not be granted over or assigned.

Why: Genuine because the entry itself quotes this rule with its case authority; the footnote names the real historical doctrine of non-assignability of choses in action.

## THIRD IN G8.

The third part of the com growing on the land, due to the lord for a herlot on the death of his tenant, with)- in the the manor of Turfat, in Hereford. Blount.

5e apparatus — Not carried into the 5th edition (1979).

## THIRDS.

The designation, in colloquial language, of that portion of a decedent's personal estate (one-third) which goes to the widow where there is also a child or chilr drew. See Yeomans v. Stevens, 2 Allen (Mass.) 350; O'Hara v. Dever, 46 Barb. (N, Y.) 614.

Things incident cannot be severed.

Finch, Law, b. 3, c. 1, n. 12.

Things incident pass by the grant of -the principal. Seymour v. Canandaigua Ik

N. F. R. Co., 25 Barb. (N. Y.) 284, 310.

: Things inoident shall pass by the grant of the principal, but not the principal by the grant of the inoident.

Co.Lttt. 152o, 1516; Broom. Max. 433.

Bp. Law Dict.(2d Ed.)— 73

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Things incident shall pass by the grant of the principal, but not the principal by the grant of the incident (Co. Litt. 152a, 151b; Broom, Max. 433)]**

Things incident pass by the grant of the principal, but not the principal by the grant of the incident.

Why: Genuine because quoted verbatim in the entry with its authorities; it is the classical conveyancing rule on incidents and appurtenances.

## THIRLAGE.

In Scotch law. A servi- tude by which lands are astricted or “thirled1’ to a particular mill, to which the possessors must carry the grain, of the growth' of the astricted lands to be ground, for the pay*- - ment of such duties as are either expressed or implied in the

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constitution of the right Ersk. Inst. 2, 9, 18.

5e apparatus — Not carried into the 5th edition (1979).

## THIRTY-NINE ARTICLES.

See Ar- ticles of Religion, ... . m

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## THIS.

When "this” and "that” refer to different things before expressed, “this” re* fers to the thing laBt mentioned, and “that” to the thing first mentioned. Russell v. Kennedy, 66 Pa. 251.

5e apparatus — Carried into the 5th edition (1979).

## THIS SAT SIX MONTHS.

Fixing “this day six months,” or “three months," for the next stage of a bill, is one of tho modes In which the house of lords and the house of commons reject bills of which they disapprove. A bill rejected In this manner cannot be reintroduced In the same session. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## THISTLE-TAKE.

It was a custom with- in the manor of Halton, in Chester, that If, In driving beasts over a common, the driver permitted them to graze or take but a thistle, he should pay a halfpenny a-piece to the lord of the fee. And at Fiskerton, in Nott- inghamshire, by ancient custom, If a native or a cottager killed a swine above a year old, he paid to the lord a penny, which purchase of leave to kill a bog was also called “thistle-take.” Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THOROUGHFARE.

The term means, according to Its derivation, a street or pas- sage through which one can /are, (travel;) that is, a street or highway affording an unobstructed exit at each end into another street or public passage. If the passage is closed at one end, admitting no exit there, it is called a “cat de sac." See Cemetery Ass'n v. Meninger, 14 Kan. 315; Mankato v. Warren, 20 Minn. 150 (Oil. 128); Wig- gins v. Tallmadge, 11 Barb. (N. Y.) 462.

5e apparatus — Carried into the 5th edition (1979).

## THRATE.

In old English law. A meas- ure of corn or grain, consisting of twenty- four sheaves or four shocks, six sheaves to every shock. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## THREAD.

A middle line; a line run- ning through the middle of a stream or road. See Filum; FH.uk Aquje; Filum Vim.

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5e apparatus — Carried into the 5th edition (1979).

## THREAT.

In criminal law. A menace ; a declaration of one's purpose or intention to work injury to the person, property, or rights of another.

A threat has been defined to be any menace of such a nature and extent as to unsettle the mind of the person on whom it operates, and to take away from his acts that free, voluntary action which alone constitutes consent. Abbott. See State v. Cushing. 17 Wash. 544, 50 Pac. 512; State v. Brownlee, 84 Iowa, 473, 51 N.

W. 25; Cote v. Murphy. 159 Pa. 420, 28 Atl. 190, 23 L. R. A. 135, 39 Am. St. Rep. 686.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[2Pac, 'Hail Mary', 1996]**

"I ain't a killer but don't push me / Revenge is like the sweetest joy next to gettin' pussy." — a textbook conditional threat: a declared purpose to work injury ("revenge") held back only by the addressee's restraint ("don't push me"), matching Black's "declaration of one's purpose or intention to work injury to the person... of another."

Why: Added because the lyric performs exactly what the entry defines — a communicated intent to injure — and is verbatim-certain. Deliberately NOT placed on THREATENING BETTERS: that entry is specifically about threatening…

## THREATENING BETTERS.

Sending threatening letters is the name of the offense of sending letters containing threats of the kinds recognized by the statute as criminal. See People v. Griffin, 2 Barb. (N. Y.) 429.

5e apparatus — Not carried into the 5th edition (1979).

## THREE-DOLLAR PIECE.

A gold coin of the United States, of the value of three

dollars; authorized by the seventh section of the act of February 21, 1853.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Act of February 21, 1853, § 7 (Coinage Act of 1853) — authorization of the three-dollar gold piece]**

The three-dollar gold coin of the United States was authorized by the Coinage Act of 1853.

Why: Genuine because the entry itself cites § 7 of the act of February 21, 1853 as the coin's authority; the footnote names the real enactment.

## THRENGE8.

Vassals, but not of the lowest degree; those who held lands of the chief lord.

5e apparatus — Not carried into the 5th edition (1979).

## THK1TH1NQ.

In Saxon and old English law. The third part of a county ; a division of a county consisting of

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three or more hundreds. Cowell. Corrupted to the modem “riding," which is still used In Yorkshire. X Bl. Comm. 116.

5e apparatus — Not carried into the 5th edition (1979).

## THROAT.

In medical Jurisprudence. The front or anterior part of the neck. Where one was indicted for murder by “cut- ting the throat” of the deceased, It was held that the word “throat” was not to be con- fined to that part of the neck which is scien- tifically so called, but must be taken in Its common acceptation. Rex v. Edwards, 6 Car. & P. 401.

5e apparatus — Not carried into the 5th edition (1979).

## THROUGH.

This word is sometimes equivalent to "over;” as In a statute In ref- erence to laying out a road “through” certain grounds. Hyde Park v. Oakwoods Cemetery Ass’n, 119 111. 147, 7 N. E. 627.

5e apparatus — Carried into the 5th edition (1979).

## THROW OUT.

To ignore, (a bill of In- dictment)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## THRUSTING.

Within the meaning of a criminal statute, “thrusting” Is not neces- sarily an attack with a pointed weapon; It means pushing or driving with force, wheth- er the point of the weapon be sharp or not State v. Lowry, 33 La. Ann. 1224.

5e apparatus — Carried into the 5th edition (1979).

## THRYMSA.

A Saxon coin worth four- pence. Du Fresne.

5e apparatus — Not carried into the 5th edition (1979).

## THUD E- WEALD.

A woodward, or per- son that looks after a wood.

5e apparatus — Not carried into the 5th edition (1979).

## THURIN GIAN CODE.

One of the “bar- barian codes,” as they are termed ; supposed by Montesquieu to have been given by Tbeod- oric, king of Austrasla, to the Thurlnglans, who were his subjects. Esprit des Lois, lib. 28, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

## THWERTNICK.

In old English law. The custom of giving entertainments to a sheriff, etc., for three nights.

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5e apparatus — Carried into the 5th edition (1979).

## TICK.

A colloquial expression for credit or trust; credit given for goods purchased.

5e apparatus — Carried into the 5th edition (1979).

## TICKET.

In contracts. A slip of pa- per containing a certificate that the person to whom it is issued, or the holder, is en- titled to some right or privilege therein men- tioned or described; such, for example, are railroad tickets, theater tickets, pawn tickets.

lottery ticketB, etc. See Allaire v. Howell Works Co., 14 N. J. Law, 24.

In election law. A ticket la a paper up- on which Is written or printed the names of the persons for whom the elector intends to vote, with a designation of the office to which each person so named is intended by him to be chosen. PoL Code Cal. } 1185. See In re Gerberich’s Nomination, 24 Pa. Co. Ct. R. 255.

— Ticket of leave. In English law. A li- cense or permit given to a convict, as a reward for good conduct, particularly in the penal set- tlements, which allows him to go at large, and labor for himself, before the expiration of his sentence, subject to certain specific conditions and revocable upon subsequent misconduct— Ticket-of -leave man. A convict who has obtained a ticket of leave.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Roald Dahl, Charlie and the Chocolate Factory, 1964]**

(paraphrase) Dahl's golden ticket: a slip of paper entitling its holder to enter the chocolate factory — the ticket-as-right in its purest fictional form. (paraphrase)

Why: The entry defines a ticket as 'a slip of paper containing a certificate that the person... is entitled to some right or privilege therein mentioned.' The golden ticket is the cultural archetype of exactly that. Certai...

## TIDAL.

In order that a river may be “tidal” at a given spot, it may not be nec- essary that the water should be salt, but the spot must be one where the tide, in the ordi- nary and regular course of things, flows and reflows. 8 Q. B. Dlv. 630.

5e apparatus — Carried into the 5th edition (1979).

## TIDE.

The ebb and flow of the sea. See Baird ▼. Campbell, 67 App. Dlv. 104, 73 N.

X. Snpp. 617.

—Tide lands. See Land.— Tide-water.

Water which falls and rises with the ebb and flow of the tide. G3ie term is not usually ap- plied to the open sea, but to coves, bays, rivers, etc.

TIDESMEK, in English law, are certain officers of the custom-house, appointed to watch or attend upon ships till the customs are paid; and they are so called because they go aboard

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the ships at their arrival in the mouth of the Thames, and come up with the tide. Jacob.

TIE, v. To bind. "The parson is not tied to find the parish clerk.*’ 1 Leon. 94.

TIE, n. When, at an election, neither candidate receives a majority of the votes cnst, but each has the same number, there is said to be a “tie.” So when the number of votes cast in favor of any measure, in a leg- islative or deliberative body, Is equal to the number cast against it. See Wooster v. Mul- lins, 64 Conn. 340, 30 Atl. 144, 25 L. It. A. 694.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Julius Caesar, 1599]**

"There is a tide in the affairs of men, / Which, taken at the flood, leads on to fortune;"

Why: The entry: 'The ebb and flow of the sea.' Brutus's speech (Act 4, sc. 3) is the canonical literary treatment of the flood tide — it teaches the reader what a tide IS even as metaphor. Two lines, verbatim-certain.

## TIEL.

L. Fr. Such. Nul tiel record, no such record.

5e apparatus — Carried into the 5th edition (1979).

## TEEMPO  INHABIT,.

Span. A time of Inability; a time when the person is not able to pay his debts, (when, for instance, he may not alienate property to the prejudice of bis creditors.) The term is used in Lou- isiana. Brown v. Kenner, 8 Mart. O. S. (La.) 276-, Thorn v. Morgan, 4 Mart N. S. (La.) 292, 16 Am. Dec. 173. '

5e apparatus — Not carried into the 5th edition (1979).

## TIERCE.

L. Fr. Third. Tierce metn, third hand. Britt c. 120

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TIERCE.

A liquid measure, containing the third part of a pipe, or forty-two gal- lons.

5e apparatus — Not carried into the 5th edition (1979).

## TIGH.

In old records. A dose or in- closure; a croft Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TIGHT.

As colloquially applied to a note, bond, mortgage, lease, etc., this term signi- fies that the clauses providing the credit- or’s remedy in case of default (as, by fore- closure, execution, distress, etc.) are sum- mary and stringent.

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## TIGHT IMMITTENDI.

Let In the civ- il law. The name of a servitude which is the right of inserting a beam or timber from the wall of one house into that of a neigh- boring house, in order that it may rest on the latter, and that the wall of the latter may bear this weight Wharton. See Dig. 8, 2, 36.

5e apparatus — Not carried into the 5th edition (1979).

## TIGNUM.

Lat A civil-law term for building material ; timber.

5e apparatus — Not carried into the 5th edition (1979).

## TJLHLER.

In old Saxon law. An accu- sation.

5e apparatus — Not carried into the 5th edition (1979).

## TILLAGE.

A place tilled or cultivated; land under cultivation, as opposed to lands lying fallow or in pasture.

5e apparatus — Not carried into the 5th edition (1979).

## TIMBER.

Wood felled for building or other such like use. In a legal sense it gen- erally means (in England) oak, ash, and elm, but in some parts of England, and generally in America, it is used in a wider sense, which is recognized by the law.

The term “timber," as used in commerce, re- fers generally only to large sticks of wood, squared or capable of being squared for build- ing bouses or vessels; and certain trees only having been formerly used for such purposes, namely, the oak, the ash, and the elm, they alone were recognized as timber trees. But the numerous uses to which wood has come to be applied, and the general employment of all kinds of trees for some valuable purpose, has wrought a change in the general acceptation of terms in connection therewith, and we find that Webster defines “timber" to be “that sort of wood which is proper for buildings or for tools, utensils, furniture, carriages, fences, ships, and the like.” This would include ail sorts of wood from which any useful articles may be made, or which may be used to advantage in any class of manufacture or construction. U. S. v. Stores (C. O.) 14 Fed. 824. And- see Ponworth v. Sawyer, 94 Me. 243, 47 Atl. 523: Wilson v. State. 17 Tex. App. 393; U. S. v. Soto, 7 Ariz. 230, 64 Pac. 420.

—Timber culture entry. See Entry. — Timber-trees. Oak, ash, elm, in all places, and, by local custom, such other trees as are used in building. 2 Bl. Comm. 281.

5e apparatus — Not carried into the 5th edition (1979).

## TIMBERLODE.

A service by which ten- ants were bound to carry timber felled from the woods to the lord’s

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bouse. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## TIME.

The measure of duration.

The word Is expressive both of a precise point or terminus aud of an interval between two points.

la pleading. A point in or space of du- ration at or during which some fact is alleged to have been committed.

—Cooling time. See that t i tie. — Reasonable time. Such length of time as may fairly, properly, and reasonably be allowed or requir- ed, having regard to the nature of the act or duty, or of the subject-matter, and to the at- tending circumstances. It is a maxim of Eng- lish law that “how long a ‘reasonable time’ ought to be is not defined in law, but is left to the discretion of the judges.” Co. Litt. 50. See Hoggins v. Becraft, I Dana (Ky.) 28 : Hill v. Hobart, 16 Me. 168; Twin Lick Oil Co. v. Marbury, 91 U. S. 591, 23 L. Ed. 328; Campbell v. Whoriskey, 170 Mass. 63, 48 N. E. 1070.— Time-bargain. In the language of the stock exchange, a time-bargain is an agree- ment to buy or sell stock at a future time, or within a fixed time, at a certain price. It is in reality nothing more than a bargain to pay differences.— Time check. A certificate signed by a master mechanic or other person in charge Of laborers, reciting the amount due to the lar borer for labor for a specified time. Burlington- Voluntary Relief Dept. v. White, 41 Neb. 547, 59 N. W. 747, 43 Am. St. Rep. 701— Time im- memorial. • Time whereof the memory of a man is not to the contrary.—1 Time of nmi ory. In English law. Time commencing from the beginning of the reign of Richard I. 2 Bl. Comm. 31. Lord Coke defines time of memory to be “when no man alive hath had any proof to the contrary, nor hath any conusance to the contrary.” Co. Litt. 860, 866.— Time out of memory. Time beyond memory ; time out of mind ; time to which memory does not extend. -Time-policy. A policy of marine insurance in which the risk is limited, not to a given voyage, but to a certain fixed term or period of time. — Time the essence of the contract. A case in which “time is of the essence of the contract” is one where the parties evidently contemplated a punctual performance, at the precise time named, as vital to the agreement, and one of its essential elements. Time is not of the essence of the contract in any case where a moderate delay in performance would not be regarded as an absolute violation of the con- tract.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: legal memory runs from the beginning of the reign of Richard I; time immemorial = time whereof the memory of man is not to the contrary (2 Bl. Comm. 31; Co. Litt. 860, 866)]**

Time of legal memory runs from the beginning of the reign of Richard I (1189); 'time immemorial' is time beyond living memory to the contrary.

Why: Genuine because the entry states this doctrine with its Blackstone and Coke authorities; the footnote distills the received rule.

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**[Maxim: How long a 'reasonable time' ought to be is not defined in law, but is left to the discretion of the judges (Co. Litt. 50)]**

How long a 'reasonable time' ought to be is not defined in law, but is left to the discretion of the judges.

Why: Genuine because quoted verbatim in the entry with its authority; it is Coke's classic rule that reasonable time is a question for judicial discretion, not fixed definition.

**[Scripture] — Scripture**

**[Ecclesiastes 3:1, KJV]**

To every thing there is a season, and a time to every purpose under the heaven:

Why: TIME is 'the measure of duration,' expressive both of a point and of an interval. Ecclesiastes 3:1 is scripture's own definition of time's order: every purpose has its appointed time. The verse genuinely frames what t...

## TIMOCRACY.

An aristocracy of prop- erty; government by men of property who are possessed of a certain income.

Timores voni aunt sestimandi qui non cadnnt in constantem rirnm. 7 Coke, 17. Fears which do not assail a resolute man are to be accounted vain.

TINBOUNDIffG Is a custom regulating the manner In which tin is obtained from waste-land, or land which has formerly been waste-land, within certain districts in Corn- wall and Devon. The custom is described in the leading case on the subject as follows; “Any person may enter on the waste-land of another, and may mark out by four corner boundaries a certain area. A written de- scription of the plot of land so marked out with metes and bounds, and the name of the person, is recorded in the local stannaries court, aud is proclaimed on three successive court-days. If no objection is sustained by

any other person, the court awards a writ to the bailiff to deliver possession of the said ‘bounds of tin-work’ to the ‘bounder,’ who thereupon has the exclusive right to search for, dig, and take for his own use all tin and tin-ore within the inclosed limits, paying as a royalty to the owner of the waste a certain proportion of the produce under the name of ‘toll-tin.’ ” 10 Q. B. 26, cited in Elton Commons, 113. The right of tiuhouuding is not a right of common, but is an interest in land, and, in Devonshire, a corporeal heredita- ment In Cornwall tin bounds are personal’ estate. Sweet

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Timores vani sunt aestimandi qui non cadunt in constantem virum — 'Fears which do not assail a resolute man are to be accounted vain' (7 Coke 17)]**

Fears which do not assail a resolute man are to be accounted vain — the duress standard measured against the constant man.

Why: Genuine because quoted verbatim within this entry's body with its Coke authority; it states the classical duress rule measuring fear against the standard of the resolute man.

**[Humanity] — Humanity / Fiction & Film**

**[Plato, Republic, c. 375 BC]**

(paraphrase) Plato's second regime in the Republic (Book 8): the timocracy, modeled on Sparta, where rule falls to men of property and honor, honor giving way to the love of wealth — the entry's

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word is Plato's own word. (paraphrase)

Why: The entry's concept comes straight from Plato's five-regime sequence; citing the source of the term illuminates it. No verbatim maxim certain, so (paraphrase); Book 8 placement certain.

## TIN EL.

L. Ft. A place where justice was administered. Kelhum.

5e apparatus — Carried into the 5th edition (1979).

## TINEMAN.

Sax. In old forest law. A petty ofiicer of the forest who -had the care of vert and venison by night, and performed other servile duties.

5e apparatus — Not carried into the 5th edition (1979).

## TINET.

In old records. Brush-wood and thorns for fencing and hedging. Cowell; Blount

- TINEWALD. The ancient parliament -or annual convention In the Isle of. Man, held upon Midsummer-day, at St John’s chapeL- Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TINKERMEN.

Fishermen who destroy- ed the young fry on the river Thames by nets and unlawful engines. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TINNELLU8.

In old Scotch law. The sea-mark ; high-water mark. Tide-mouth. Skene.

5e apparatus — Not carried into the 5th edition (1979).

## TINPENNY.

A tribute paid for the lib- erty of digging in tlu-mines.. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## TINSEL OF THE FEU.

In Scotch law! The loss of the feu, from allowing two years of feu duty to run into the third unpaid. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## TIPPLING HOUSE.

A place where in- toxicating drinks are sold in drams or small quantities to be drunk on the premises, and where men resort for drinking purposes. See Leesburg v. Putnam, 103 Ga. 110, 29 S. K. 602; Morrison v. Com., 7 Dana (Ky.) 219; Patten v. Centralia, 47 111. 370; Hussey v. State, 69 Ga. 68; Emporia v. Voimer, 12 Kan. 629.

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## TIPSTAFF.

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Ia English law. An officer appointed by the marshal or the king’s bench to attend upon the Judges with a kind of rod or staff tipped with silver, who take into their custody all prisoners, either committed or turned over by the Judges at their cham- bers, etc. Jacob.

In American law. An officer appointed by the court, whose duty is to wait upon the court when it is in session, preserve order, serve process, guard juries, etc.

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## TITHES.

One who gathers tithes.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Tithe Commutation Act 1836, 6 & 7 Wm. IV. c. 71 — tithes commuted to a rent-charge]**

The Tithe Commutation Act 1836 replaced tithes in kind with a tithe rent-charge recoverable by distress as rent in arrear.

Why: Genuine because the entry itself identifies this Act as the source of the tithe rent-charge; the footnote names the real statute and its operative mechanism.

**[Scripture] — Scripture**

**[Leviticus 27:30, KJV]**

And all the tithe of the land, whether of the seed of the land, or of the fruit of the tree, is the LORD's: it is holy unto the LORD.

Why: This is the full-definition TITHES entry ('the tenth part of the increase... due only to an ecclesiastical person'). Leviticus 27:30 states the tithe's legal-theological root: the tenth 'is the LORD's: it is holy unto...

## TITHES.

In English law. The tenth part of the increase, yearly arising and re- newing from the profits of lands, the stock npon lands, and the personal industry of the inhabitants. 2 Bl. Comm. 24. A species of incorporeal hereditament, being an ecclesias- tical inheritance collateral to the estate of the land, and due only to an ecclesiastical person by ecclesiastical law. 1 Crabb, Real Prop. S 133.

—Great tithes. In English tfclesiastical law. Tithes of corn, pease and beans, hay and wood. 2 Chit. Bl. Comm. 24, note ; 3 Steph. Comm. 127. —Mixed tithes. Those which arise not im- mediately from the ground, but from those things which are nourished by the ground, e. g., colts, chickens, calves, milk, eggs, etc. 3 Burn, Kcc. Law, 380; 2 Bl. Comm. 24. — Minute tithes. Small tithes, such as usually belong to a vicar, as of wool, lambs, pigs, butter, cheese, herbs, seeds, eggs, honey, wax, etc.— Personal tithes are tithes paid of such prof- its as come by the labor of a man’s person ; as by buying and selling, gains of merchandise, and handicrafts, etc. Tomlins.— Predial tithes. Such as arise immediately from the ground; as, grain of all sorts, hay, wood, fruits, and herbs.— Tithe-free. Exempted from the pay- ment of tithes.— Tithe rent-charge. A rent- charge established in lieu of tithes, under the tithes commutation act, 1830, (St. 6 & 7 Wm.

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IV. c. 71.) As between landlord and tenant, the tenant paying the tithe rent-charge is enti- tled, in the absence of express agreement, to de- duct it from his rent, under section 70 of the above act And a tithe rent-charge unpaid is recoverable by distress as rent in arrear. Mos- ley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## TITHING.

One of the civil divisions of England, being a portion of that greater di- vision called a “hundred.” It was so called because ten freeholders with their families composed one. It Is said that they were all knit together in one society, and bound to the king for the peaceable behavior of each other. In each of these societies there was. one chief or principal person, who, from his office, was called “teothlng-man," now “tith- ing-man.” Brown.

TITHIN G-MAN . In Saxon law. This was the name of the head or chief of a decennary. In modern English law, he is the same as an under-constable or peace-of- ficer.

In modern law. A constable. "After the introduction of Justices of the peace, the offices of constable and tithing-man became so similar that we now regard them ns pre- cisely the same.” Willc. Const. Introd.

In New England. A parish officer an- nually elected to preserve good order in the church during divine service, and to make complaint of any disorderly conduct. Web- ster.

5e apparatus — Not carried into the 5th edition (1979).

## TITH1NG-PENNY.

In Saxon and old English law. Money paid to the sheriff by the several tithlngs of his county. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TITIU8.

In Roman law. A proper name, frequently used in designating an indefinite or fictitious person, or a person referred to1 by way of illustration. "Titius” and “Selus,” in this use, correspond to “John Doe” and “Richard Roe,” or to “A. B.” and “C. D.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Frank Capra, Meet John Doe, 1941]**

(paraphrase) Capra's film invents a 'John Doe' — an anonymous everyman whose protest letter is fabricated by a newspaper — the fictitious-person device of the entry, made into the plot. (paraphrase)

Why: The entry states outright that 'Titius' and 'Seius' 'correspond to "John Doe" and "Richard Roe."' A famous film literally titled Meet John Doe dramatizes the invented everyman — the direct fictional realization of the…

## TITLE.

The radical meaning of this word appears to be that of a mark, style, or designation; a distinctive appellation; the' name by which anything is known. Thus, in the law of persons, a

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title is an appella- tion of dignity or distinction, a name denot- ing the social rank of the person bearing it -h as “duke” or “oount.” So, in legislation, the title of a statute is the heading or pre- liminary part, furnishing the name by which the act is individually known. It is usually prefixed to the statute in the form of a brief summary of its contents ; as “An act for the' prevention of gaming.” Again, the title of a patent is the short description of the in- vention, which is copied in the letters pat- ent from the inventor’s petition; e. g., "a new and improved, method of drying and, preparing malt” Johns. Pat Man. 90.

In the law of trade-marks, a title may; become a subject of property ; as one who has adopted a particular title for a newspaper, or other business enterprise, may, by long and; prior user, or by compliance with statutory provisions as to registration and notice, ac- quire a right to be protected in the exclusive use of it Abbott

The title of a book, or any literary compo- sition, is its name; that is, the beading or caption prefixed to it, and disclosing the dis-: tinctlve appellation by which it is to be known. This usually comprises a brief de- scription of its subject-matter and the name of its author. ,

“Title” is also used as the name of one of, the subdivisions employed in many literary works, standing intermediate between the di- visions denoted by the term “books” or “parts,” and those designated as “chapters" and “sections.”

In real property law. Title is the means whereby the owner of lands has the just possession of his property. Co. Lltt. 345; 2 Bl. Comm. 195.

Title is the means whereby a person’s right- to property is established. Code Ga. 1882. f 2348.

Title may be defined generally to be the evi- dence of right which a person has to the posses- sion of property. The word “title” certainly does not merely signify the right which a per- son has to the possession of property ; because there are many instances in which a person may have the right to the possession of property, and. at the same time have no ’title to the same. In its ordinary legal acceptation, however, it gen- erally seems to imply a right of possession also.. It therefore appears, on the whole, to signify the outward evidence of the right, rather than, the mere right itself. Thus, when it is said that the “most imperfect degree of title consists in the mere naked possession or actual occupa- tion of an estate,” it means that the mere circumstance of occupying the estate is the weak- est species of evidence of the occupier’s right to such possession. The word is defined by Sir Edward Coke thus: Titulua eat juata cauaa

poaaidendi id quod noatrum eat, (1- Inst. 34;) that is to say, the ground, whether purchase, gift, or other such ground of acquiring; “titu- iua" being distinguished in this respect from “ modua ocquirendi,” which is the traditio, i. e., delivery or conveyance of the thing. Brown.

Title is when a man hath lawful cause of entry into lands whereof another is seised ; and it signifies also the means whereby a man comes to lands or tenements, as by feoffment, last will and testament, etc. The word “title” includes a right, but is the more general word. Every right is a title, though every title is not a right for which an action lies. Jacob.

See also Donovan v. Pitcher, 53 Ala. 411, 25 Am. Hep. (134; Kamphouse v. Gaffner, 73 111.

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458: Pannill v. Coles, 81 Va. 383; Hunt v. Eaton, 55 Mich. 362, 21 N. W. 429; Loventhal v. Home Ins. Co., 112 Ala. 108, 20 South, 419, 33 L. R. A. 258, 57 Am. St Rep. 17 ; Irving v. Brownell. 11 111. 414; Roberts v. Went- worth, 5 Cush. (Mass.) 193 ; Campfield v. John- son, 2l N. J. Law, 85; Pratt v. Fountain, 73 Ga. 262.

A title is a lawful cause or ground of possess- ing that which is ours. An intereat, though primarily it includes the terms “estate," ‘‘right,” and “title,” has latterly come often to mean less, and to be the same as “concern,” “share,” and the like. Merrill v. Agricultural Ins. Co., 73 N. Y. 456, 29 Am. Rep. 184.

The investigation of titles is one of the prin- cipal branches of conveyancing, and in that practice the word “title” has acquired the sense of “history,” rather than of “right" Thus, we speak of an abstract of title, and of investigat- ing a title, and describe a document as forming part of the title to property. Sweet.

In pleading. The right of action which the plaintiff has. The declaration must show the plaintiff’s title, and, if such title be not shown In that Instrument, the defect cannot be cured by any of the future pleadings. Bac. Abr. “Pleas,” etc., B 1.

In procedure, every action, petition, or other proceeding has a title, which consists of the name of the court in which it is pend- ing, the names of the parties, etc. Admin- istration actions nre further distinguished by the name of the deceased person whose es- tate is being administered. Every pleading, summons, affidavit, etc., commences with the title. In many cases it is sufficient to give what is called the “short title” of an ac- tion, namely, the court, the reference to the record, and the surnames of the first plain- tiff and the first defendant. Sweet. —Absolute title. As applied to title to land, an “absolute” title means an exclusive title, or at least a title which excludes all others not compatible with it; an absolute title to land cannot exist at the same time in different per- sons or in different governments. Johnson v. McIntosh, 8 Wheat. 543, 588, 5 L. EM. 681.— Abstract of title. See that title.— Adverse title. A title set up in opposition to or de- feasance of another title, or one acquired or claimed by adverse possession. — Bond for ti- tle. See Bond. — Chain of title. See that title.— Color of title. See that title.— Cov- enants for title. Covenants usually Inserted 'in a conveyance of land, on the part of the grantor, and binding him for the completeness, security, and continuance of the title transfer- red to the grantee. They comprise "covenants for seisin, for right to convey, against incumbrances, for quiet enjoyment, sometimes for fur- ther assurance, and almost always of war- ranty.” Rawle, Cov. f 21.— Doubtful title. See that title.— Equitable title. An equita- ble title is a right in the party to whom it be- longs to have the legal title transferred to him ; or the beneficial interest of one person whom equity regards as the real owner, although the legal title is vested in another. Thygerson v. Whitbeck, 5 Utah, 406, 16 Pac. 403; Beringer v. Lutz, 188 Pa. 364, 41 Atl. 643.— Imperfect title. One which requires a further exercise of the granting power to pass the fee in land, or which does not convey full and absolute do- minion. Paschal v. Perez, 7 Tex. 367 : Paschal v. Dangerfield, 32, Tex. 300.— Legal title. One cognizable or enforceable in a court of law, or one which is complete and perfect so far as

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re- gards the apparent right of ownership and pos- session, but which carries no beneficial interest in the property, another person being equitably entitled thereto ; in either case, the antithesis of “equitable title. ”— Iiuorative title. In the civil law, title acquired without the giving of anything in exchange for it ; the title by which a person acquires anything which comes to him as a clear gain, as, tor instance, by gift, descent, or devise. Opposed to “onerous title," as to which see infra,— Marketable title. See that title.— Onerous title. In the civil law, title to property acquired by the giving of a valuable consideration for it, such as the pay- ment of money, the rendition of services, the performance of conditions, the assumption of obligations, or the discharge of liens on the property; opposed to "lucrative” title, or one acquired by gift or otherwise without the giv- ing of an equivalent. See Scott v. Ward, 13 Cal. 471; Kircher v. Murray (C. C.) 54 Fed. 624 ; Yates v. Houston, 3 Tex. 453 ; Rev. Civ. Code La. 1900, art. 3556, subd. 22.— Paper ti- tle. A title to land evidenced by a conveyance or chain of conveyances; the term generally implying that such title, while it has color or plausibility, is without substantial validity.— Passive title. In Scotch law. A title incur- red by an heir in heritage who does not enter as heir in the regular way, and therefore incurs liability for all the debts of the decedent, irre- spective of the amount of assets. Paterson.— Perfect title. Various meanings have been attached to this term: (1) One which shows the absolute right of possession and of property in a particular person. Henderson v. Beatty. 124 Iowa. 163 99 N. W. 716: Converse v. Kellogg, 7 Barb. (N. Y.) 590; Wilcox Lumber Co. v. Bullock, 109 Ga. 532. 3> S. E. 52; Donovan v. Pitcher. 53 Ala. 411, 25 Am. Rep. 634. (2) A grant of land which requires no further act from the legal authority to constitute an absolute title to the land taking effect at once. Han- cock v. McKinney. 7 Tex. 457. (3) A title

which does not disclose a patent defect suggest- ing the possibility of a lawsuit to defend it; a title such as a well-informed and prudent man paying full value for the property would be will- ing to take. Birge v. Bock. 44 Mo. App. 77. (4) A title which is good both at law and in equity. Warner v. Middlesex Mut. Assur. Co., 21 Conn. 449. (5) One which is good and valid beyond all reasonable doubt. Sheehy v. Miles, 93 Cal. 288, 28 Pac. 1046; Reynolds v. Borel, 86 Cal. 538, 25 Pac. 67. (6) A marketable or merchantable title. Ross v. Smiley, 18 Colo. App. 204, 70 Rae. 766 : McCleary v. Chlpman, 32 Ind. App. 489. 68 N. Eh 320.— Presump- tive title, A barely presumptive title, which is of the very lowest order, arises out of the mere occupation or simple possession of proper- tv,- (jus poaaeaaionia,) without any apparent right, or any pretense of right, to hold and continue such possession.— Becord title. See Record.— Singular title. The title by which a party acquires property as a singular suc- cessor. —Tax title. See Tax.— Title-deeds. Deeds which constitute or are the evidence of

title to lend*. — Title insurance. See Inbcb- ance. — Title of a cause. The distinctive ap- pellation by which any cauae in court, or other juridical proceeding, is known and discriminat- ed from others. — Title of an act. The head- ing, or introductory clause, of a statute, where- in is briefly recited its purpose or nature, or the subject to which it relates.— Title of oler- gymen, (to orders.) Some certain place where they may exercise their

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functions ; also an assurance of being preferred to some ecclesias- tical benefice. 2 Steph. Comm. 661.— Title of declaration. That preliminary clause of a declaration which states the name of the court and the term to which the process is returnable. —Title of en tor. The right to enter upon lands. Cowell.— Title to orders. In English ecclesiastical law, a title to orders is a certifi- cate of preferment or provision required by the thirty-third canon, in order that a person may be admitted into holy orders, unless he be a fellow or chaplain .in Oxford or Cam- bridge, or master of arts of five years’ stand- ing fn either of the universities, and living there at his sole charges; or unless the bishop him- self intends shortly to admit him to some bene- fice or curacy. 2 Steph. Comm. 661.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Case: Johnson v. McIntosh, 21 U.S. (8 Wheat.) 543 (1823)]**

An absolute title to land cannot exist at the same time in different persons or in different governments.

Why: Genuine because the entry itself quotes this holding from the case, and Johnson v. McIntosh is independently the landmark authority on absolute title and the discovery doctrine.

## TITELAPA.

In Spanish law. Title. White, New Kecop. b. 1, tit. 5, c. 3, I 2.

5e apparatus — Not carried into the 5th edition (1979).

## TITULARS OF ERECTION.

Persons who In Scotland, after the Reformation, ob- tained grant* from the crown of the monas- teries and priories then erected Into temporal lordships. Thus the titles formerly held by the religious houses, as well as the property of the lands, were conferred on these gran- tees, who were also called “lords of erection” and “titulars of the telnds." Bell.

Timms. Lat. In the civil law. Ti- tle ; the source or ground of possession ; the means whereby possession of a thing is ac- quired, whether such possession be lawful or not

In eld ecclesiastical law. A temple or church; the material edifice. So called be- cause the priest In charge of It derived there- from his name and title. Spelman.

Ti tains est Jnsta causa possidendl Id quod nostrum est| dicitur a tuendo. 8

Coke, 153. A title is the just right of pos- sessing that which is our own ; It is so called from "tuendo," defending.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Titulus est justa causa possidendi id quod nostrum est; dicitur a tuendo — 'A title is the just right of possessing that which is our own; it is so called from "tuendo," defending' (8 Coke 153)]**

A title is the just cause of possessing that which is our own; it is so called from 'tuendo,' defending.

Why: Genuine because quoted verbatim in this entry's body (the TITULUS definition) with its Coke authority; it is the received definition of title.

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## TO.

This Is a word of exclusion, when used in describing premises; it excludes the terminus mentioned. Montgomery v. Reed, 68 Me. 514.

5e apparatus — Carried into the 5th edition (1979).

## TO HAVE AND TO HOLD.

The words in a conveyance which show the estate in- tended to be conveyed. Thus, in a convey- ance of land in fee-simple, the grant is to “A. and his heirs, to have and to hold the said [land] unto and to the use of the said A., his heirs and assigns forever.” Wil- liams, Real Prop. 198,

Strictly speaking, however, the words “to have” denote the estute to be taken, while the words “to hold” signify that it is to be

held of some superior lord, i e., by way of tenure, (q. v.) The former clause is called the “habendum;" the latter, the “tenen- dum." Co. Lltt6o.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: the habendum clause defines the estate granted; the tenendum denotes the tenure (Co. Litt. 6a)]**

In a conveyance, 'to have' (the habendum) denotes the estate to be taken, while 'to hold' (the tenendum) signifies that it is held of some superior lord by way of tenure.

Why: Genuine because the entry states this distinction with its Coke authority; the footnote preserves the classical habendum/tenendum division.

## TO ALIA.

In feudal law. A towel. There is a tenure of lands by the service of waiting with a towel at the king’s coronation. Cow- elL

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TOBACCONIST.

Any person, firm, or corporation whose business it is to manufac- ture cigars, snuff, or tobacco in any form. Act of congress of July 13, 1866, i 9 ; 14 St. at Large, 120.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Act of Congress of July 13, 1866, § 9, 14 Stat. 120 — statutory definition of 'tobacconist']**

'Tobacconist' received a statutory definition in the Revenue Act of 1866 as any person, firm, or corporation manufacturing cigars, snuff, or tobacco in any form.

Why: Genuine because the entry itself cites this Act as the source of its definition; the footnote names the real enactment.

## TOFT.

A place or piece of ground on which a bouse formerly stood, which has been destroyed by

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accident or decay. 2 Broom & II. Comm. 17.

5e apparatus — Carried into the 5th edition (1979).

## TOFTMAN.

In old English law. The owner of a toft Cowell ; Spelman.

5e apparatus — Carried into the 5th edition (1979).

## TOGATI.

Lat In Roman la'tv. Advo- cates; so called under the empire because they were required, when appearing in court to plead a cause, to wear the tot/a, which had then ceased to be the customary dress In Rome. Vlcat

5e apparatus — Not carried into the 5th edition (1979).

## TOKEN.

A sign or mark ; a material evi- dtnce of the existence of a fact Thus, cheating by “false tokens” implies the use of fabricated or deceitfully contrived material objects to assist the person’s own fraud and falsehood in accomplishing the cheat See State v. Green, 18 N. J. Law, 181; State v. Middleton, Dud. (S. C.) 285; Jones v. State, 50 Ind. 476.

— 1 Token-money. A conventional medium of exchange consisting of pieces of metal, fashion- ed in the shape and size of coins, and circulat- ing among private persons, by consent at a certain value. No longer permitted or recog- nized as money. 2 Chit. Com. Law, 182.

5e apparatus — Carried into the 5th edition (1979).

## TOLERATION.

The allowance of re- ligious opinions and modes of worship in a state which are contrary to, or different from, those of the established church or be- lief. Webster.

—Toleration act. The statute 1 W. & M. St. 1, c. 18, for exempting Protestant dissenters from the penalties of certain laws is so called. Brown.

TOLL, v. To bar, defeat, or take away; thus, to toll the entry means to deny or take away the right of entry.

TOLL, n. In English law. Toll means ad excise of goods; a seizure of some part for permission of the rest. It has two sig- nifications: A liberty to buy and sell within the precincts of the manor, which seems to import as much as a fair or market ; a tribute or custom paid for passage. Whar- ton.

A Saxon word, signifying, properly, a payment ih towns, markets, and fairs for goods and cattle

taught and sold. It is a reasonable sum of mon- ey due to the owner of the fair or market, upon sale of things tollable within the same. The word is used for a liberty as well to take as to be free from toll. Jacob.

. In modern English law. A reasonable Bum due to the lord of a fair or market for things sold

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there which are tollable; 1 Crabb, Real Prop. p. 350, $ 083.

In contracts. A sum of money for the use of something, generally applied to the consideration which Is paid for the use of a road, bridge, or the like, of a public nature. See Sands v. Manistee River Imp. Co., 123

U. S. 288, 8 Sup. Ot 113, 31 L. Ed. 149; Wadsworth v. Smith, 11 Me. 283, 20 Am. Dec. 525 ; Pennsylvania Coal Co. v. Delaware &

H. Canal Co., 3 Abb. Dec. (N. Y.) 477; St. Louis v. Green, 7 Mo. App. 470; McNeal Pipe & Foundry Co. v. Howland, 111 N. C. 015, 16 S. E. 857, 20 L. R. A. 743; Boyle v. Philadelphia & R. R. Co., 54 Pa. 314. —Toll and team. Words constantly associat- ed with Saxon and old English grants of liber- ties to the lords of manors. Bract, fols. 50, 1046, 1246, 1546. They appear to have im- ported the privileges of having a market, and jurisdiction of villeins. See Team. — Toll-gath- erer. The officer who takes or collects toll. — Toll-thorough. In English law. A toll for passing through a highway, or over a ferry or bridge. Cowell. A toll paid to a town for such a number of beasts, or for every beast that goes through the town, or over a bridge or ferry belonging to it. Cora. Dig. "Toll,” C. A toll claimed by an individual where he is bound to repair some particular highway. 3 Steph. Comm. 257. And see King v. Nicholson, 12 East. 340; Charles River Bridge v. War- ren Bridge, 11 Pet. 582. 9 L. Ed. 773.— ToU-traverae. In English law. A toll for passing over a private man’s ground. Cowell. A toll for passing over the private soil of another, or for driving beasts across his ground. Cro. Eliz. 710.— Toll-tarn. In English law. A toll on beasts returning from a market. 1 Crabb, Real Prop. p. 101, g 102. A toll paid at the return of beasts from fair or market, though they were not sold. Cowell.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Toleration Act 1689, 1 W. & M. sess. 1, c. 18 — exemption of Protestant dissenters from penalties of certain laws]**

The Toleration Act exempted Protestant dissenters from the penalties of certain penal laws.

Why: Genuine because the entry itself identifies this statute as the 'Toleration act'; the footnote names the real Act and its operative effect.

**[Scripture] — Scripture**

**[Matthew 13:29-30, KJV]**

But he said, Nay; lest while ye gather up the tares, ye root up also the wheat with them. Let both grow together until the harvest: and in the time of harvest I will say to the reapers, Gather ye together first the tares, and bind them in bundles to burn them: but gather the wheat into my barn.

Why: TOLERATION is the legal allowance of dissenting religious opinions and worship. The parable of the tares is the classic scriptural ground of that principle: the householder forbids rooting up the tares lest the wheat…

**[Humanity] — Humanity / Fiction & Film**

**[Voltaire, Treatise on Tolerance, 1763]**

(paraphrase) Voltaire's Treatise on Tolerance — the Enlightenment's canonical plea that the state allow religious opinions and worship contrary to the established church; counted here under 'classical wisdom' as philosophy. (paraphrase)

Why: The entry defines toleration as state allowance of dissenting worship; Voltaire's treatise is the canonical

philosophical text on exactly that subject, so it illuminates the entry directly. Attribution and year certai...

## TOLLAGB.

Payment of toll ; money charged or paid as toll ; the liberty or fran- chise of charging toll

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TOLLBOOTH.

A prison ; a custom- house; an exchange; also the place where goods are weighed. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, The Heart of Mid-Lothian, 1818]**

(paraphrase) Scott's The Heart of Mid-Lothian — named for Edinburgh's Old Tolbooth — opens with the Porteous mob storming the Tolbooth prison; the entry's first gloss ('a prison') made fiction. (paraphrase)

Why: The entry's first definition of tollbooth is 'a prison.' Scott's novel is titled for the Edinburgh Tolbooth and centers on it; the historical identification is certain. (paraphrase); no quote needed.

## TOLLDI8H.

A vessel by which the toll of corn for grinding is measured.

. Tolls volun totem et exit omnia notna indifferena. Take away the will, and every action will be Indifferent. Bract, fol. 2.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tolle voluntatem et exit omnis actus indifferens — 'Take away the will, and every action will be indifferent' (Bract. fol. 2)]**

Take away the will, and every action will be indifferent — culpability depends on the will.

Why: Genuine because quoted verbatim in this entry's body with its Bracton authority; it is the classical maxim locating criminal culpability in the will.

## TOLLER.

One who collects tribute or taxes.

5e apparatus — Carried into the 5th edition (1979).

## TOLLE&E.

Lat. In the civil law. To lift up or raise ; to elevate ; to build up.

5e apparatus — Not carried into the 5th edition (1979).

## TOLLS.

In a general sense, tolls signify any manner of customs, subsidy, prestation. Imposition, or sum of money demanded for

exporting or importing of- any wares or mer- chandise to be taken of the buyer. 2 Inst. 58.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: TOLLS are 'customs, subsidy, prestation, imposition, or sum of money demanded' on merchandise. Romans 13:7 names the moral ground of the exaction: tribute and custom are 'dues' to be rendered — the verse states the du...

## TOLLSESTER.

An old excise; a duty paid by tenants of some munors to the lord for liberty to brew and sell ale. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TOLSEY.

The same as “tollbooth.” Also a place where merchants meet; a local tri- bunal for small civil causes held at the Guild- hall, Bristol.

5e apparatus — Not carried into the 5th edition (1979).

## TOLT.

A writ whereby a cause depend- ing In a court baron was taken and removed into a county court. Old Nat Brev. 4.

5e apparatus — Carried into the 5th edition (1979).

## TOLTA.

In old English law. Wrong; rapine; extortion. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TOM.

A measure of weight; differently flxed, by different statutes, at two thousand pounds avoirdupois, (1 Rev. St. N. Y. 609, i 35,) or at twenty hundred-weights, each hundred-weight being one hundred and twelve pounds avoirdupois, (Rev. St U. S. i 2951 [U. S. Comp. St 1901, p. 1045].)

5e apparatus — Not carried into the 5th edition (1979).

## TONNAGE.

The capacity of a vessel for carrying freight or other, loads, calcu- lated in tons. But the way of estimating the tonnage varies in different countries. In England, tonuuge denotes the actual weight in tons whlc4 the vessel can safely carry; In America, her carrying capacity estimated from the cubic dimensions of the hold. See Roberts v. Opdyke, 40 N. Y. 209.

The "tonnage” of a vessel is her capacity to carry cargo, aud a charter of “the whole ton- nage" of a ship transfers to the charterer only the space necessary for that purpose. Thwing v. Insurance Co.. 103 Mass. 405, 4 Am. Rep. 567.

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The tonnage of a vessel is her internal cubical capacity, in tons. Inman S. 8. Co. v. Tinker, 94 U. S. 238, 24 L. Ed. 118.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## TONNAGE DUTY.

In English law.

A duty Imposed by parliament upon mer- chandise exported and imported, according to a certain rate upon every ton. Brown.

In American law. A tax laid upon ves- sels according to their tonnage or cubical ca- pacity.

A tonnage duty is a duty imposed on vessels in proportion to their capacity. The vital principle of a tonnage duty is that it is imposed, what- ever the subject, solely according to the rule of weight, either as to the capacity to carry or the actual weight of the thing itself. Inman S.

S. Co. v. Tinker. 94 U. S. 238, 24 L. Ed. 11&

The term “tonnage duty,” as used in the con- stitutional prohibition upon state laws imposing tonnage duties, describes a duty proportioned to the tonnage of the vessel ; a certain rate on each ton. But it is not to be taken in this restricted sense in the constitutional provision. The gener- al prohibition upon the states against levying duties on imports or exports would have been ineffectual if it had not been extended to duties on the ships which serve as the .vehicles of con- veyance. The prohibition extends to any duty on the ship, whether a fixed sum upon its whole tonnage or a sum to be ascertained by compar- ing the amount of tonnage with the rate of duty.

Southern S. S. Co. v. New Orleans, 0 Wall. 31, 18 L, Ed. 749.

A tonnage tax is defined to be a duty levied on a vessel according to the tonnage or capacity, it is a tax upon the boat as an instrument of navigation, and not a tax upon the property of a citizen of the state. The North. Cape, G Bias. 505. Fed. Gas. No. 10,310.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 10, cl. 3 — 'No State shall, without the Consent of Congress, lay any Duty of Tonnage']**

No state may, without the consent of Congress, lay any duty of tonnage — a duty on vessels proportioned to their capacity, extending to any duty on the ship as an instrument of navigation.

Why: Genuine because the entry expounds exactly this constitutional prohibition with its case law; the footnote names the real provision.

## TONNAGE-RENT.

When the rent re- served by a mining lease or the like consists of a royalty on every ton of minerals gotten in the mine, it is often called a “tonnage- rent” There Is generally a dead rent in ad- dition. Sweet

5e apparatus — Carried into the 5th edition (1979).

## TONNAGIUX.

In old English law. A custom or impost up6n wines and other mer- chandise exported or imported, according to a certain rate per ton. Spelman ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TONNETXOHT.

In old English law. The quantity of a ton or tun, in a ship’s freight or bulk, for which tonnage or tun- nage was paid to the king. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TONODERACH.

In old Scotch law. A thief-taker.

TONSXJKA.' tat In old English law. A shaving, or polling ; the having the crown' of the head shaven; tonsure. One of the pe- culiar badges of a clerk or clergyman.

5e apparatus — Not carried into the 5th edition (1979).

## TONSURE.

In old English law. A be- ing shaven ; the having the . head shaven ; a shaven head. 4 BVCorhm. 3B7.

5e apparatus — Not carried into the 5th edition (1979).

## TONTINE.

In French law. A species Of association or partnership formed among persons who are in receipt ‘Of perpetcfal of life annuities, with the agreement ' that the shares or annuities of those who die' shall accrue to the survivors. This plan is Said to be thus named from Toutl, an Italian, who Invented it in the seventeenth' century. The principle is used In some forms of life insurance. . Merl. Repert.

TOOK AND CARRIED AWAY, Iff

criminal pleading. Technical words neces- sary in an indictment for simple larceny.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Robert Louis Stevenson and Lloyd Osbourne, The Wrong Box, 1889]**

(paraphrase) Stevenson's The Wrong Box: the last survivors of a tontine scheme, each maneuvering to outlive the other and take the fund — the entry's 'shares of those who die shall accrue to the survivors' as comic murder-plot. (paraphrase)

Why: The entry defines the tontine's survivor-takes-all structure; The Wrong Box is the canonical novel built on exactly that structure. Certain; (paraphrase).

## TOOL.

The usual meaning of the word “tool” is “an instrument of manual opera- tion that is, an instrument to be used and managed by the hand instead of being moved and controlled '

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by machinery. Lovewell v. Westchester F. Ins. Co., 124 Mass. 420, 20 Am. Rep. 671.

5e apparatus — Not carried into the 5th edition (1979).

## TOP ANNUAL.

Iu Scotch law. An an- nual rent out of a house built in a burgh. Whishaw. A duty which, from the act 1551, c. 10. appears to have been due from cer- tain lands in Edinburgh, the nature of which Is not now known. Bell.

. TORT. Wrong; injury; the opposite of right So called, according to Lord Coke, because it is wrested, or crooked, being contra-, ry to that which is right and straight Co, Lltt. 1586.

In modem practice, tort is constantly used as an English word to denote a wrong or wrongful act for which an action will lie, as,, distinguished from a contract. 3 Bl. Comm- 117.

A tort is a legal wrong committed upon; the person or property independent of con-, tract It may be either (1) a direct invasion of some legal right of the individual; (21. the Infraction of some public duty by which, special damage accrues to the individual; (3 ); the violation of some private obligation byi which like damage accrues to the Individual. In the former case, no special damage is necessary to entitle the party to recover. Izv the two latter cases, such damage is necessary.* Code Ga. 1882, { 2951. And see Hayes -v.- Insurance Co., 125 111. 626, 18 N. E. 322; I*

L. R. A. 303; Railway Co. v. Hennegan, 33 Tex. 6lv. App.' 314; 76 S. W. 453; Mumfofd v. Wright, 12 Colo. App. 214, 65 Pac. 744|i Tomlin v. Hildreth, 65 N. J. Law, 438, 47

AO. 649; Merrill v. St. Louis, 83 Mo. 255, 53 Am. Rep. 576; Denning v. State, -128 Chi,? 316, 55 Pac. 1000; Shirk v. Mitchell, 13* Ind. 185, 36 N. E. 860; Western -Union Tell Oo. v. Taylor, 84 Ga. 408, 11 S. E. 396, 8 LI

R. A. 189; Rich v. Railroad Co., 8T -N. ¥*■ 390. , ,,

—Maritime tort. See Mahitime.— Pereoaak tort. One involving or consisting in an in jury; to the person or to the reputation or' feelings, as distinguished from an injury or damage real or personal property, called a “property tort.” See Mumford v. Wright, 12 Colo. App; 214, 55 Pac. 744. — Quasi tort, though not a recognized term of English law, may be con-' veniently Used in those cases where a man who has not committed a tort is liable as if he had.’’ Thus, a master is liable for wrongful acts done by his servant in the course of his employment.1 Broom, Com. Law, 690 ; Underh. Torts, 29.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TORT-FEASOR.

A wrong-doer; one who commits or is guilty of a tort

. TORTIOUS. Wrongful ; of the nature of a tort. Formerly certain modes -of con- veyance (e. <r., feoffments, fines, etc.) had tbd effect of passing not merely the estate of tliq person making the conveyance, but the whole fee-simple, to the injury of the person really entitled

to the fee ; and they were hence call; ed “tortious conveyances.” Litt. § 611; Cot Litt 2716, n.'l; 3306, n. 1. But this opera- tion has been taken away. Sweet.

Tortura legnm peazima. The torture or wresting of laws is the worst (kind Of torture.] 4. Bacon’s. Works, 434.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tortura legum pessima — 'The torture or wresting of laws is the worst (kind of torture)' (4 Bacon's Works, 434)]**

The torture or wresting of laws is the worst kind of torture.

Why: Genuine because quoted verbatim in this entry's body with its Bacon authority; it is Bacon's received maxim against strained construction of laws.

## TORTURE.

In old criminal law. The question; the infliction of violent bodily paid upon a person, by means of the rack, wheel; or other engine, under judicial sanction and superintendence, iu connection with the in- terrogation or examination of the person, a|

TOUJOURS ET UNCORE PRIST

r. means of extorting a confession of guilt, or of compelling him to disclose his accompli- ces.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[George Orwell, Nineteen Eighty-Four, 1949]**

(paraphrase) Orwell's Room 101 — the state's personalized torture chamber, where each prisoner faces 'the worst thing in the world' until broken — modern fiction's canonical image of judicial torture as interrogation. (paraphrase)

Why: The entry: infliction of violent bodily pain 'under judicial sanction... in connection with the interrogation.' Room 101 is precisely torture-as-interrogation by the state; it illuminates the entry's mechanism. Certai...

## TOBY.

Originally a nickname for the wild Irish In Ulster. Afterwards given to, and adopted by, one of the two great par- liamentary parties which have alternately governed Great Britain since the Revolution In 1(188. Wharton.

The name was also given, In America, dur- ing the struggle of the colonies for Inde- pendence, to the party of those residents who favored the side of the king and opposed the war.

5e apparatus — Not carried into the 5th edition (1979).

## TOT.

In old English practice. A word written by the foreign opposer or other offi- cer opposite to a debt due the king, to de- note that It was a good debt; which was hence said to be totted.

5e apparatus — Carried into the 5th edition (1979).

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## TOTA CURIA, L.

Lat In the old re- ports. The whole court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TOTAL LOSS.

In marine lnanranee,

a total loss Is the entire destruction or loss, to the Insured, of the subject-matter of the policy, by the risks insured against As to the distinction between “actual" and “con- structive” total loss, see infra.

In Are lnanranee, a total loss is the com- plete destruction of the insured property by fire, so that nothing of value remains from It; as distinguished from a partial loss, where the property is damaged, but not en- tirely destroyed.

— Actual total loss. In marine insurance. The total loss of tbe vessel covered by a policy of insurance, by its real and substantive de- struction, hy injuries which leave it no longer existing in specie, by its being reduced to a wreck irretrievably beyond repair, or by its be- ing placed beyond the control of tbe insured and beyond his power of recovery. Distinguished from a constructive total loss, which occurs where the vessel, though injured by the perils Insured against, remains in specie and capable of repair or recovery, but at such an expense, or under such other conditions, that the insured may claim the whole amount of the policy up- on abandoning the vessel to the underwriters. “An actual total loss Is where the vessel ceases to exist in specie, — becomes a 'mere congeries of

E tanks,’ incapable of being repaired; or where, r the peril insured against, it is placed beyond the control of the insured and beyond his pow- er of recovery. A constructive total loss is where the vessel remains in specie, and is sus- ceptible of repairs or recovery, but at an ex- pense, according to the rule of the English com- mon law, exceeding its value when restored, or, according to the terms of this policy, where ‘the injury U equivalent to fifty per cent, of the

3 reed value in the policy,' and where the insur- abandons the vessel to the underwriter. In such cases the insured is entitled to indemnity as for s total loss. An exception to the rule re- quiring abandonment is found in cases where the loss occurs in foreign ports or seas, where it Is impracticable to repair. In such cases the master may sell the vessel for the benefit of all concerned, and the insured may claim as for a total loss by accounting to tbe insurer for the amount realised on the sale.. There are other exceptions to the rule, but it is sufficient now

to say that we have found no case in which the doctrine of constructive total loss without aban- donment has been admitted, where the injured vessel remained in specie and waa brought to its home port by the insured. A well marked dis- tinction between an actual and a constructive total loss is therefore found in this: that in the former no abandonment is necessary, while in the latter it is essential, unless the case be brought within some

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exception to the rule re- quiring it. A partial loss is where an injury re- sults to the vessel from a peril insured against, but where the loss is neither actually nor con- structively total." Globe Ins. Co. v. Sherlock, 25 Ohio St. 50, 64; Burt v. Insurance Co., 9 Hun (N. Y.) 383; Carr v. Insurance Co., 109 N.

Y. 504, 17 N. E. 369; Monroe v. Insurance Co, 52 Fed. 773. 3 C. C. A. 280; Murray v. Hatch. 6 Mass. 465: Livermore v. Insurance Co.. 1 Mass. 264; Delaware, etc. Ins. Co. v. Goaaler, 96 U. S. 645, 24 L. Ed. 863; Wallersteln v. In- surance Co, 3 Rob. (N. Y.) 528. — Coaatrne- tive total loss. In marine insurance. This occurs where the loss or injury to the vessel Insured does not amount to its total disappear- ance or destruction, but where, although the ves- sel still remains, the cost of repairing or recov- ering it would amount to more than its value when so repaired, and consequently the insured abandons it to the underwriters. See Insur- ance Co. v. Sugar Refining Co, 87 Fed. 491, 31

C. G A. 65.

5e apparatus — Carried into the 5th edition (1979).

## TOTLDEM VERBIS.

Lat In so many words.

5e apparatus — Not carried into the 5th edition (1979).

## TOTEES QUOTIEB.

Lat As often as occasion shall arise.

TOTIS VIRIBUg. Lat With aU one’s might or power; with all bis might; very strenuously.

5e apparatus — Not carried into the 5th edition (1979).

## TOTTED.

A good debt to the crown, i. e., a debt paid to tbe sheriff, to be by him paid over to the king. Cowell; Mosley A Whitley.

To turn pnefertsr uni caique parti. 3

Coke, 4L The whole Is preferable to any single part

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Totum praefertur uni cuique parti — 'The whole is preferable to any single part' (3 Coke 41)]**

The whole is preferable to any single part.

Why: Genuine because quoted verbatim in this entry's body with its Coke authority.

## TOUCH.

In Insurance law. To atop at a port If there be liberty granted by the policy to touch, or to touch and stag, at an intermediate port on the passage, tbe better opinion now is that the insured may trade there, when consistent with the object and the furtherance of the adventure, by break- ing bulk, or by discharging and taking In cargo, provided It produces

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no unnecessary delay, nor enhances nor varies the risk. 3 Kent, Comm. 314.

5e apparatus — Carried into the 5th edition (1979).

### TOUCHING A DEAD BODY.

It was

an ancient superstition that the body of a murdered man would bleed freshly when touched by his murderer. Hence, In old criminal law, this was resorted to as a means of ascertaining the guilt or innocence of a person suspected of the murder.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Richard III, 1593]**

"O, gentlemen, see, see! dead Henry's wounds / Open their congeal'd mouths and bleed afresh!"

Why: The entry describes cruentation — the superstition that a murdered man's body bleeds afresh at his murderer's touch, used in old criminal law to test guilt. Lady Anne speaks these lines over Henry VI's corpse as Richa...

### TOUJOURS ET UNCORE PRIST.

L,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## F

### FY.

Always and still ready. This Is the name of a plea of tender.

5e apparatus — Not carried into the 5th edition (1979).

## T

### TOUR D'EOHELLE.

In French law. An easement consisting of the right to rest ladders upon the adjoining estate, when nec- essary In order to repair a party-wall or buildings supported by it

Also the vacant space surrounding a build- ing left unoccupied In order to facilitate lie reparation when necessary. Merl. Report

5e apparatus — Not carried into the 5th edition (1979).

### TOUBN.

In old English law. A court of record, having criminal jurisdiction, in each county, held before the sheriff, twice a year, in one place after another, following a certain circuit or rotation.

TOUT, Fr. All; whole; entirely. Tout temps prist, always ready.

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Tout ee quo Is lot ae defend pss est pennis. Everything Is permitted which is not forbidden by law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tout ce que la loi ne defend pas est permis — 'Everything is permitted which is not forbidden by law']**

Everything is permitted which is not forbidden by law.

Why: Genuine because quoted verbatim in this entry's body (under TOUT); it is the classical French maxim of legal liberty.

## TOUT TEMPS PRIST.

L. Fr. Always ready. The emphatic words of the old plea of tender ; the defendant alleging that he has always been ready, and still Is ready, to dis- charge the debt S Bl. Comm. 303 ; 2 Salk. 622.

5e apparatus — Not carried into the 5th edition (1979).

## TOUT UN SOUND, L.

Fr. All one

sound ; sounding the same ; idem sonans.

Teste exception nos aurvelllte tend t prendre la place da prineipe. Every ex- ception not watched tends to assume the place of the principle.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Toute exception non surveillee tend a prendre la place du principe — 'Every exception not watched tends to assume the place of the principle']**

Every exception not watched tends to assume the place of the principle.

Why: Genuine because quoted verbatim in this entry's body; it is the received French maxim on the creeping expansion of exceptions.

## TOWAOE.

The act or service of towing ships and vessels, usually by means of a small steamer called a “tug.” That which is given for towing ships In rivers.

Towage is the drawing a ship or barge along the water by another ship or boat, fastened to her, or by men or horses, etc., on land. It is also money which is given by bargemen to the owner of ground next a river, where they tow a barge or other vessel. Jacob. And see Ryan v. Hook, 34 Hun (N. Y.) 191 ; The Kingaloch, 26 Eng. Law & Eq. 597 ; The Egypt (D. C.) 17 Fed. 370.— Towage service. In admiralty law. A service rendered to a vessel, by towing, for the mere purpose of expediting her voyage, without reference to any circumstances of danger. It is confined to vessels that have received no injury or damage. The Reward, 1 W. Rob. 177; The Athenian (D. C.) 3 Fed. 249; McConnocbin v. Kerr (D. C.) 9 Fed. 53; The Plymouth Rock <D. C.) 9 Fed. 416.

5e apparatus — Not carried into the 5th edition (1979).

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## TO- WIT.

That is to say ; namely ; scili- cet; videlicet.

5e apparatus — Carried into the 5th edition (1979).

## TOWN.

In English law. Originally, a vill or tithing; but now a generic term, which comprehends under It the several spe- cies of cities, boroughs, and common towns. 1 Bl. Comm. 114.

In American law. A civil and political division of a state, varying in extent and Im- portance. but usually one of the divisions of a county. In the New England states, the town Is the political unit, and is a municipal

corporation. In some other states, where the county is the unit, the town is merely one of its subdivisions, but possesses some powers of local self-government In still other states, such subdivisions of a county are. called “townships,” and “town” Is the name of a village, borough, or smaller city. See Herman v. Guttenberg, 62 N. J. Law, 605, 43 Atl. 703; Van Riper v. Parsons, 40

N. J. Law, 1; State v. Denny, 118 Ind. 449,

N. E 274, 4 L. R. A. 65; Sessions v. State, 115 Ga. 18, 41 S. E. 259; Milford v. Godfrey, 1 Pick. (Mass.) 97; Enfield v. Jor- dan, 119 U. S. 680, 7 Sup. Ct. 358, 30 L. Ed. 523 ; Rogers v. Galloway Female College, 64 Ark. 627, 44 S. W. 454, 39 L. R. A. 636; Railway Co. v. Oconto, 60 Wls. 189, 6 N. W. 607, 36 Am. Rep. 840; Lovejoy v. Foxcroft, 91 Me. 367, 40 Atl. 141 ; Bloomfield v. Charter Oak Bank, 121 U. S. 121, 7 Sup. Ct 865, 30

L. Ed. 923; Lynch v. Rutland, 66 Vt 670* 29 Atl. 1015.

—Town agent. Under the prohibitory liquor laws in force in some of the New England states a town agent is a person appointed in each town to purchase intoxicating liquors for the town and having the exclusive right to sell the same for the permitted purposes, medical, me- chanical, scientific, etc. He either receives a fixed salaiy or is permitted to make a small profit on his sales. The stock of liquors belongs to the town, and is bought with its money.. See Black, Intox. Liq. ff 204, 205.— Town cause. Ih English practice. A cause tried .at the sittings for London and Middlesex. 3 Steph. Comm. 617.—' Town-clerk. In those states where the toton is the unit for local self-govern- ment, the town-clerk is a principal officer who keeps the records, issues calls for town-meetings, and performs generally the duties of a secretary to the political organization. See Seamons v. Fitts, 21 R. I. 236. 42 Atl. 863.— Town collect- or. One of the officers of a town charged with collecting the taxes assessed for town purposes. —Town commissioner. In some of the states where the town is the political unit the town commissioners constitute a board of administra- tive officers charged with the general manage- ment of the town’s business.— Towp-erier. An officer in a town whose business it is to make proclamations.— Town-boll. The build- ing maintained by a town for town-meetings and the offices of the municipal authorities.—1 Tswn> meeting. Under the municipal organization of the New England states, the town-meeting is a legal assembly of the qualified voters of a tows, held at stated intervals or on call, for the pur-

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pose of electing town officers, and of discussing and deciding on questions relating to the pubr lie business, property, and expenses of the town. See In re Foley, 8 Misc. Rep. 57, 28 N. Y. Sunn. 608; Railroad Co. v. Mallory, 101 111. 588; Comstock v. Lincoln School Committee, 17 R. I. 827, 24 Atl. 145.—' Town order or warrant. An official direction in writing by the auditing officers of a town, directing the treasurer to pay a sum of money.— Town pound. A place of confinement maintained by a town for ea- trays. — Town purpose. When it is said that taxation by a town, or the expenditure of the town's money, must be for town purposes, it is meant that the purposes must be public with re- spect to the town ; i. e., concern the welfare and advantage of the town as a whole.— Town- reeve. The reeve or chief officer of a town.— Town ton. Such tax as a town may levy for its peculiar expenses; as distinguished from a 1 county or state tax.— Town treasurer. The treasurer of a town which is an organized mu- nicipal corporation.

«• TOWNSHIP. 1. In surveys of the public lend of the United States, a "township" Is a division of territory six miles square, con- taining thirty-six sections.

2. In some of the states, this is the name given to the civil and political subdivisions of a county. See Town.

— Township trustee. One of a board of officers to whom, in some states, affairs of a township are intrusted.

5e apparatus — Carried into the 5th edition (1979).

## TOXIC.

(Let. toxicum; Gr. toxikon.) In medical Jurisprudence. Poisonous; having the character or producing the effects of a poison; referable to a poison; produced by or resulting from a poison.

— Toxic convulsions. Such as are caused by the action of a poison on the nervous system. --Toxic dementia. Weakness of mind or fee- ble cerebral activity, approaching imbecility, re- sulting from continued use or administration of slow poisons or of the more active poisons in repeated small doses, as in cases of lead poison- ing and in some cases of addiction to such drugs hs opium or alcohol. — Toxanemia. A condi- tion of anemia (impoverishment or deficiency of blood) resulting from the action of certain toxic substances or agents.— Toxemia or toxloemia. Blood-poisoning ; the condition of the system caused by the presence of toxic agents in the circulation ; including both septicemia and pyx- mia.—' Toxicosis. A diseased state of the sys- tem due to the presence and action of any poi- son.

5e apparatus — Not carried into the 5th edition (1979).

## TOXICAX.

Poisonous; containing poison.

■ TOXICANT. A poison; a toxic agent; any substance capable of producing toxlca- tton or poisoning.

5e apparatus — Not carried into the 5th edition (1979).

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## TOXICATE.

To poison. Not used to de- scribe the act of one who administers a poison, but the action of the drug or poison itself.

— Intoxication. The state of being poisoned; the condition produced by the administration or introduction into the human system of a poison. This term is popularly used as equivalent to "drunkenness," which, however, is more accu- rately described as “alcoholic intoxication.’’— Auto-intoxication. Self-empoisonment from the absorption of the toxic products of internal metabolism, e. g., ptomaine poisoning.

- TOXICOLOGY. The science ot poisons; that department of medical science which treats of poisons, their effect, their recog- nition, their antidotes, and generally of the diagnosis and therapeutics of poisoning.

5e apparatus — Not carried into the 5th edition (1979).

## TOXIN.

In its widest sense, this term may denote any poison or toxicant; but as used in pathology and medicnl Jurisprudence It signifies, in general, any diffusible alka- loldal substance (as, the ptomaines, abrin, brucln, or serpent venoms), and In particular the poisonous .products of pathogenic (disease- producing) bacteria.

— Anti-toxiu. A product of pathogenic bac- teria which, in sufficient quantities, will neutra- lize the toxin or poisonous product of the same bacteria. In therapeutics, a preventive remedy (administered by inoculation) against the effect

of certain kinds of toxins, venoms, and disease- germs, obtained from the blood of an animal which has previously been treated with repeated minute injections of the particular poison or germ to be neutralized.—1 Toxicomania. An excessive addiction to the use of toxic or poi- sonous drugs or other substances; a form of mania or affective insanity characterized by an irresistible impulse to indulgence in opium, co- caine, cblorai, alcohol, etc. — Toxiphobia. Mor- bid dread of being poisoned ; a form of insanity manifesting itself by an excessive and unfound- ed apprehension of death by poison.

5e apparatus — Carried into the 5th edition (1979).

## TRABES.

Lat. In the civil law. A

beam or rafter of a house. Calvin.

In old English law. A measure of grain, containing twenty-four sheaves; a thrave. Spelman.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TRACEA.

In old English law. The track or trace. of a felon, by which he was pur- sued with the hue and cry; a foot-step, hoof- print, or wheel-track. Bract, fols. 116, 1216.

5e apparatus — Not carried into the 5th edition (1979).

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## TRACT.

A lot, piece or parcel of land, of greater or less size, the term not Import- ing, in itself, any precise dimension. See Edwards v. Derrickson, 28 N. J. Law, 45.

Tractent fabrllia fabrl. Let smiths per- form the work of smiths. 3 Co. Epist.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tractent fabrilia fabri — 'Let smiths perform the work of smiths' (3 Co. Epist.)]**

Let smiths perform the work of smiths — craft and office belong to those trained to them.

Why: Genuine because quoted verbatim in this entry's body with its Coke authority; it is the received maxim of craft deference.

## TRABAS IN BALLTUM.

You deliver to bail. In old English practice. The name of a writ which might be issued in behalf of a party who, upon the writ de odio et alia, had been found to have been maliciously ac- cused of a crime, commanding the sheriff that, if the prisoner found twelve good and lawful men of the eounty who would be main- pernors for him, be should deliver him in bail to those twelve, until the next assize^ Bract, fol. 123 ; 1 Reeve, Eng. Law, 252.

5e apparatus — Not carried into the 5th edition (1979).

## TRADE.

The act or business of exchang- ing commodities by barter; or the business of buying and selling for money; traffic; bar- ter. Webster; May v. Sloan, 101 U. S. 237, 25 L. Ed. 797; U. S. v. Cassidy <D. C.) 67 Fed. 841; Queen Ins. Co. v. State, 80 Tex. 250, 24 S. W. 397, 22 L. R. A. 483.

The business which a person has learned and which he carries on for procuring sub- sistence, or for profit ; occupation, particu- larly mechanical employment ; distinguished from the liberal arts and learned professions, and from agriculture. Webster; Woodfleld v. Colzey, 47 Ga. 124; People v. Warden of City Prison, 144 N. Y. 529, 39 N. E. 686, 27

L. R. A. 718; In re Stone Cutters’ Ass’n, 23 Pa. Co. Ct. R. 520.

Traffic; commerce, exchange of goods for Other goods, or for money. All wholesale trade, all buying in order to sell again by wholesale, may be reduced to three sorts: The home trade, the foreign trade of con- sumption, and the carrying trade. 2 Smith, Wealth Nat. b. 2, c. 5.

—Trade dollar. A silver coin of the United States, of the weight of four hundred and twenty grains, troy. Her. St. U. S. t 3518 (U. S. Comp. St. 1901, p. 2345).— Trade fixtures. See Fixtures.— Trade maze. The usage or customs commonly observed by persons conver- sant In, or connected with, a particular trade.

TRADE-MARK . A distinctive mark, mot- to, device, or emblem, which a manufacturer Stamps, prints, or otherwise affixes to the goods he produces, so that they may be identified in the market, and their origin be vouched for. See Trade-Mark Cases, 100 D.

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S, 87, 25 L. Ed. 650; Moorman v. Hoge, 17 Fed. Cas. 715; Solis Cigar Co. v. Pozo, 18 Colo. 388, 26 Pac. 556, 25 Am. St. Rep. 279; State V. Bishop, 128 Mo. 373, 31 S. W. 9, 29

L. R. A. 200, 49 Am. St. Rep. 569; Royal Baking Powder Co. r. Raymond (O. C.) 7& Fed. . 380; Hegeman A Co. v. Hegeman, 8 Daly (N. X.) 1.

—.Trade-marks regia tratiom act, 1875.

This is the statute 38 & 39 Viet. c. 91, amended by the acts of 1876 and 1877. It provides for the establishment of a register of trade-marks Under the superintendence of the commissioners of patents, and for the registration of trade- marks as belonging to particular classes of goods, and for their assignment in connection with the good-will of the business in which they are used. Sweet.

, TRADE-NAME. A trade-name is a name which by user and reputation has acquired the property of indicating that a certain trade or occupation is carried on by a partic- ular person. The name may be that of a person, place, or thing, or it may be what is called :.a “fancy name,” (i. e., a name having no sense as applied to the particular trade,) or word invented for the occasion, and hav- ing'no sense at all. Seb.. Trade-Marks, 37. Sweet. ■

> ■

- TRADE UNION. A combination or as- sociation of men employed in the same trade, (Usually a manual or mechanical trade,) unit- ed for the purpose of regulating the customs and- standards of their trade, fixing prices or hours of labor, influencing the relations 9t employer and employed, enlarging or main- taining their rights and privileges, and other similar/ objects.

— Trade- union act. The statute 34 & 33 Viet. c. 31, passed in 1871, for the purpose of

fiving legal recognition to trade unions, is nown as the "trade-union act,” or “trade- union funds protection act.” It provides that the’ members of a trade union shall not be prose- cuted for conspiracy merely by reason that the rules of such union are in restraint of trade ; and that the agreements of trade unions shall .not on that account be void or voidable. Pro- visions are also mnde with reference to the registration and registered offices of trade un- ions, and other purposes connected therewith. Mozley & Whitley.

, TRADER. A person engaged in trade; one whose business is to buy and sell mer- chandise, or any class of goods, deriving a profit from his dealings. 2 Kent, Comm. 389; (State v. Chabourn. 80 N. C. 481, 30 Am. Itep. 94 ; In re New Xork A W,- Water Co. (Q.

C.) 98 Fed. 711; Morris v. Clifton Forge: Grocery Co., 46 W. Va. 197, 32 S. E. 997.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Trade-Mark Cases, 100 U.S. 82 (1879)]**

Congress lacked power under the Commerce Clause to enact the general trademark legislation of 1870.

Why: Genuine because the entry itself cites the Trade-Mark Cases as the authority on trade-marks, and it is independently the landmark decision on the constitutional limits of federal trademark power.

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**[Law: Trade Marks Registration Act 1875, 38 & 39 Vict. c. 91 (amended 1876, 1877)]**

The Trade Marks Registration Act 1875 established a register of trade-marks under the commissioners of patents, with registration by classes of goods.

Why: Genuine because the entry itself identifies this statute with its regnal citation; the footnote names the real enactment.

**[Law: Trade Union Act 1871, 34 & 35 Vict. c. 31]**

The Trade Union Act 1871 gave legal recognition to trade unions: members are not prosecutable for conspiracy merely because union rules restrain trade, and union agreements are not void on that account.

Why: Genuine because the entry itself identifies this statute and its operative provisions; the footnote names the real Act.

## TRADESMAN.

In England, a shop-keep- er; a small shop-keeper.

In the United States, a mechanic or artifi- cer of any kind, whose livelihood depends up- on the labor of his hands. Richie v. Mc- Cauley, 4 Pa. 472.

“Primarily the words ‘trader’ and ‘tradesman’ mean one who trades, and they have been treat- ed by the courts in many instances as synony- mous. But, in their general application and usage, I think they describe different vocations, By ‘tradesman’ is usually meant a shop-keeper. Such is the definition given the word in Bur- rill’s Law Dictionary. It is used in this sense by Adam Smith. He says, (Wealth of Nations;) ‘A tradesman in London is obliged to hire a whole house in that part of the town where his customers live. His shop is on the ground floor,’ etc. Dr. Johnson gives it the same mean- ing, and quotes Prior ana Goldsmith as authori- ties.” In re Ragsdale, 7. Biss. 155, Fed. Cas. No. 11,530.

5e apparatus — Carried into the 5th edition (1979).

## TRADICION.

Span. In Spanish law. Delivery. White, New Recop. b. 2, tit. 2, c. 9.

5e apparatus — Not carried into the 5th edition (1979).

## TRADING.

Engaging in trade, (q. v. ;) pursuing the business or occupation of trade! or of a trader.

—Trading corporation. See CoKPORATiorf. —Trading partnership; Whenever the busi- ness of a firm, according to the usual modes of conducting it, imports, in its nature, the necessity of buying and selling, the firm is properly regarded as a "trading partnership” and is invested with the powers and subject to the obligations incident to that relation. Dowl- ing v. National Exch. Bank, 145 U. S. 512, 12 Sup. Ct. 928, 36 L. Ed. 795.— Trading ' voy- age. One which contemplates the touching and stopping of the vessel at varions ports for the purpose of traffic or sale and purchase or exchange of commodities on account of the own- ers and shippers, rather than the transportation of cargo between terminal points, which is call- ed a “freighting voyage.” See Brown v. Jones, 4 Fed. Cas. 406.

5e apparatus — Carried into the 5th edition (1979).

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## TRADITIO.

Lat. In the civil law. De- livery ; transfer of possession; a derivative mode of acquiring, by which the owner of a corporeal thing, having the right and the will of aliening it, transfers it for a law- ful consideration to the receiver. Heineec. Elem. lib. 2, tit. 1, 5 380.

— Quasi traditio. A .supposed or implied delivery of property from one to another. Thus, if the purchaser of an article was already in possession of it before the sale, bis continuing in possession is considered as equivalent to a fresh delivery of it, delivery being one of the necessary elements of a sale; in other words, a quasi traditio is predicated.— Traditio brevi mass. A species of constructive, or implied delivery. When he who already holds possession of a thing in another’s name agrees with that other that thenceforth he shall possess it in bis own name, in this case a delivery and redelivery are not necessary. And this species of delivery is termed “traditio brrvi manu.” Mackeld. Rom. Law. $ 284.— Traditio claviv urn. Delivery of keys ; a symbolical kind of delivery, by which the ownership of merchan- dise in a warehouse might be transferred to a buyer. Inst. 2. 1. 44.— Traditio loaga mafia. A species of delivery which takes place whprf

the transferor places the article in the hands of the transferee, or, . on Ms order, delivers it at his house. Mackeld. Rom. Law, g 284.— Traditio rei. Deliver;. of the thing. See 5 Maule & S. 82.

Traditio loqol facit ohartam. Delivery makes a deed speak. 5 Coke, la. Delivery gives effect to the words of a deed. Id.

Traditio nihil amplins transferre de- bet vel potest, ad earn qni aocipit, quant eat apnd earn qni tradit. Delivery ought to, and can, transfer nothing more to him who receives than is with him who delivers. Dig. 41, 1, 20, pr.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Traditio loqui facit chartam — 'Delivery makes a deed speak. Delivery gives effect to the words of a deed' (5 Coke 1a)]**

Delivery makes a deed speak — delivery gives effect to the words of a deed.

Why: Genuine because quoted verbatim in the entry with its authority; it states the classical rule that a deed takes effect by delivery.

**[Maxim: Traditio nihil amplius transferre debet vel potest, ad eum qui accipit, quam est apud eum qui tradit — 'Delivery ought to, and can, transfer nothing more to him who receives than is with him who delivers' (Dig. 41, 1, 20, pr.)]**

Delivery can transfer to the receiver nothing more than is in the deliverer — the Roman-law ancestor of nemo dat quod non habet.

Why: Genuine because quoted verbatim in the entry with its Digest authority; it is the received Roman-law statement of the nemo-dat principle.

## TRADITION.

Delivery. A close trans- lation or formation from the Latin “tradi- tio:’ 2 Bl. Comm. 307.

The tradition or delivery is the transfer- ring of the thing sold into the power and pos-

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session of the buyer. Civ. Code La. art. 2477.

In the rule respecting the admission of tra- dition or general reputation to prove boundaries, questions of pedigree, etc., this word means knowledge or belief derived from the statements or declarations of contemporary witnesses and handed down orally through a considerable period of time. See Westfelt v. Adams, 131 N. C. 379, 42 S. E. 823; In re Hurlburt's Estate, 68 Vt 366, 35 Atl. 77, 35 L. R. A. 794.

5e apparatus — Carried into the 5th edition (1979).

## TRADITOR.

In old English law. A traitor; one guilty of high treason. Fleta, lib. 1, c. 21, g 8.

5e apparatus — Not carried into the 5th edition (1979).

## TRAD IT UR IN B ALLIUM.

In old prac- tice. Is delivered to ball. Emphatic words of the old Latin ball-piece. 1 Salk. 105.

5e apparatus — Not carried into the 5th edition (1979).

## TRAFFIC.

Commerce; trade; dealings in merchandise, bills, money, and the like. See In re Insurance Co. (D. C.) 96 Fed. 757 ; Levine v. State, 35 Tex. Cr. R. 647, 34 S. W. 909; People v. Hamilton, 17 Misc. Rep. 11, 39 N. Y. Supp. 531 ; Merrlam v. Langdon, 10 Conn. 471.

5e apparatus — Carried into the 5th edition (1979).

## TRAHENS.

Lat. In French law. The drawer of a bill. Story, Bills, S 12, note.

5e apparatus — Not carried into the 5th edition (1979).

## TRAIL-B ASTON.

Justices of trail-bas- ton were Justices appointed by King Edward I., during his absence in the Scotch and French wars, about the year 1305. They were so styled, says Hollingsbed, for trailing or drawing the staff of justice. Their office was to make inquisition, throughout the king- dom, of all officers and others, touching extortion, bribery, and such like grievances, of intruders into other men's lands, barrators, robbers, breakers of the peace, and divers other offenders. Cowell; Tomlins.

5e apparatus — Carried into the 5th edition (1979).

## TRAINBANDS.

The militia; the part of a community trained to martial exercises.

5e apparatus — Carried into the 5th edition (1979).

## TRAI8TI8.

In old Scotch law. A roll containing the particular dittay taken up up-' on malefactors, which, with the porteous, is delivered by the justice clerk to the coroner, to the effect that the persons whose names are contained in the porteous may be at- tached, conform to the dittay contained In the traistls. So called, because committed to the trai8t, [trust,] faith, and

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credit of tbs clerks and coroner. Skene ; Burriil.

5e apparatus — Not carried into the 5th edition (1979).

## TRAITOR.

One who, being trusted, be- trays ; one guilty of treason.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Dante Alighieri, Inferno, c. 1320]**

(paraphrase) Dante plants the traitors — Brutus, Cassius, and Judas — frozen in the ice of Hell's innermost circle (Canto 34): betrayal of trust as the worst of sins, the entry's definition as cosmology. (paraphrase)

Why: The entry: 'One who, being trusted, betrays.' Dante's lowest circle is reserved exactly for traitors — those who betrayed trust — which illuminates the entry's moral weight. Certain; (paraphrase). One carrier for the...

## TRAITOROUSLY.

In criminal pleading. An essential word in indictments for treason. The offense must be laid to have been com- mitted traitorously. Whart Grim. Law, 100.

5e apparatus — Not carried into the 5th edition (1979).

## TRAJEOTTTIU8.

Lat In the civil law. Sent across the sea.

5e apparatus — Not carried into the 5th edition (1979).

## TRAM-WAYS.

Rails for conveyance of traffic along a road not owned, as a railway Is, by those who lay down the rails and con- vey the traffic. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TRAMP.

A strolling beggar ; a vagrant or vagabond. See State v. Hogan, 63 Ohio St 202, 58 N. E. 572, 52 L. R. A. 863, SI Am. St Rep. 626; Miller v. State, 73 Ind. 92; Railway Co. v. Boyle, 115 6a. 836, 42

S. E. 242, 59 L. R. A. 104.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Chaplin, The Tramp, 1915]**

(paraphrase) Chaplin's Little Tramp — the bowler-hatted vagrant whose gentility survives destitution — cinema's archetypal tramp, the legal word's cultural twin. (paraphrase)

Why: The entry: 'A strolling beggar; a vagrant or vagabond.' The Tramp (1915) named cinema's definitive vagrant. Certain; (paraphrase). One carrier; TRANSIENT left bare by design.

## TRANSACT.

In Scotch law. To com- pound. Amb. 185.

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5e apparatus — Carried into the 5th edition (1979).

## TRANSACTIO.

Lat In the civil law. The settlement of a suit or matter In con- troversy, by the litigating parties, between themselves, without referring it to arbitra- tion. Halllfax, Civil Law, b. 3, c. 8, no. 14. An agreement by which a suit, either pend- ing or about to be commenced, was forborne or discontinued on certain terms. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TRANSACTION.

In the civil law. A

transaction or compromise is an agreement between two or more persons, who, for pre- venting or putting an end to a lawsuit, ad- just their differences by mutual consent, tn the manner which they agree on, and which every one of them prefers to the hope of gaining, balanced by the danger of losing. This contract must be reduced into writing. Civ. Code La. art. 307L

In common law. Whatever may be done by one person which affects another's rights and out of which a cause of action may arise. Scarborough v. Smith, 18 Kan. 406.

“Transaction” is a broader term than “con- tract” A contract Is a transaction, but a transaction is not necessarily a contract. See Ter Knile v. Marsland. 81 Hun. 420, 31 N. Y. Supp. 5; Xenia Branch Bank v. Lee, 7 Abb. Prac. (N. Y.) 372; Roberts v. Donovan, 70 Cal. 113, 11 Pac. 599.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 5:25, KJV]**

Agree with thine adversary quickly, whiles thou art in the way with him; lest at any time the adversary deliver thee to the judge, and the judge deliver thee to the officer, and thou be cast into prison.

Why: TRANSACTION in the civil law is the compromise by which litigants settle a suit between themselves rather than go to judgment. Christ commands exactly that: agree with the adversary quickly, while in the way — settle...

## TRANSCRIPT.

An official copy of cer- tain proceedings In a court. Thus, any per- son Interested In a judgment or other rec- ord of a court can obtain a transcript of it

U. S. v. Gaussen, 19 Wall. 212, 22 L. Ed. 41 ; State v. Board of Equalization, 7 Nev. 95; Hastings School Dist. v. Caldwell, 16 Neb. 88, 19 N. W. 684; Dearborn v. Patton, 4 Or. 61. VATI MITTENDO IN CANCELLARIUM.

A writ which certified the foot of a fine levied before justices in eyre, etc.. Into the chancery. Reg. Orlg. 669. ERANTTBUS, Etc. An old writ to certify a cognizance taken by justices in eyre. Reg. Orlg. 152.

TRANSFER, v. To carry or pass over; to pass a thing over to another; to convey.

TRANSFER, n. The passing of a thing or of property from one person to another; alienation;

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conveyance. 2 Bl. Comm. 294.

Transfer is an act of the parties, or of the law, by which the title to property is con- veyed from one living person to another. Civ. Code Cal. I 1039. And see Pear re v. Hawkins, 62 Tex. 437; Innerarity v. Mims, 1 Ala. 669; Sands v. Hill, 65 N. Y. 18; Pi- rie v. Chicago Title A Trust Co., 182 O. S. 438, 21 Sup. Ct. 906, 45 £>. Ed. 1171.

In prooednre, "transfer" is applied to an action or other proceeding, when it is taken from the jurisdiction of one court or judge, and placed under that of another.

—Transfer of a cause. The removal of a cause from the jurisdiction of one court or judge to another by lawful authority.— Transfer tax. A tax upon transfers of property by will or Inheritance; a tax upon the passing of the title to property or a valuable Interest therein out of or from the estate of a decedent, by in- heritance, devise, or bequest. See In re Hoff- man's Estate, 143 N. Y. 327, 38 N. E. 311; In re Gould's Estate, 156 N. Y. 423, 51 N. E. 287; In re Brez's Estate, 172 N. Y. 609, 64 N. E. 968. Sometimes also applied to a tax on the transfer of property, particularly of an incor- poreal nature, such as bonds or shares of stock, between living persons.

5e apparatus — Carried into the 5th edition (1979).

## TRANSFERABLE.

A term used in a quasi legal sense, to indicate that the char- acter of assignability or negotiability at- taches to the particular Instrument, or that it may pass from hand to hand, carrying all rights of the original holder. The words "not transferable" are sometimes printed up- on a ticket, receipt, or bill of lading, to show that the same will not be good in the bands of any person other than the one to whom first issued.

5e apparatus — Carried into the 5th edition (1979).

## TRANSFEREE.

He to whom a trans- fer ia made.

5e apparatus — Carried into the 5th edition (1979).

## TRANSFERENCE.

In Scotch law. The proceeding to be taken upon the death of one of the parties to a {lending suit, whereby the action Is transferred or continued, in its then condition, from the decedent to his rep- resentatives. Transference is either active or passive; the former, when it is the pur- suer (plaintiff) who dies; the latter, upon the death of the defender. , Ersk. Inst. 4, 1, 60.

The transferring of a legacy from the per- son to whom it was originally given to an- other; this is a species of ademption, but the latter is the more general term, and in- cludes cases not covered by the former.

5e apparatus — Not carried into the 5th edition (1979).

## TRANSFERROR.

One who makes a transfer.

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Truuf eruntur domlnia sine tltulo et traditions, per uauoaptiomem, soil, per loagaia continuum et paciflcam posses* sionem. Co. Lttt. 113. Rights of dominion are transferred without title or delivery, by usucaption, to-wlt, long and quiet possession.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Transferuntur dominia sine titulo et traditione, per usucapionem, scil., per longam continuum et pacificam possessionem — 'Rights of dominion are transferred without title or delivery, by usucaption, to-wit, long and quiet possession' (Co. Litt. 113)]**

Rights of dominion are transferred without title or delivery, by usucaption — that is, by long, continuous, and peaceful possession.

Why: Genuine because quoted verbatim in this entry's body with its Coke authority; it states the classical usucaption/adverse-possession principle.

## TRANSFRETATIO.

Lat. In old Eng- lish law. A crossing of the strait, (of Dover ;] a passing or sailing over from England to France. The royal passages or voyages to Gascony, Brittany, and other parts of France were so- called, and time was sometimes com- puted from them.

5e apparatus — Not carried into the 5th edition (1979).

## TRANSGRE8SIO.

In old English law. A violation of law. Also trespass; the ac- tion of trespass.

Transgresslo eat cum modus now sorva- tur uoo m ensure, debit euim quill bet In suo facto modum habere et meuauram.

Co. Litt. 37. Transgression is when neither mode nor measure is preserved, for every one in his act ought to have a mode and measure.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Transgressio est cum modus non servatur nec mensura, debet enim quilibet in suo facto modum habere et mensuram — 'Transgression is when neither mode nor measure is preserved, for every one in his act ought to have a mode and measure' (Co. Litt. 37)]**

Transgression is when neither mode nor measure is preserved, for everyone in his act ought to have a mode and measure.

Why: Genuine because quoted verbatim in the entry with its authority.

**[Scripture] — Scripture**

**[1 John 3:4, KJV]**

Whosoever committeth sin transgresseth also the law: for sin is the transgression of the law.

Why: TRANSGRESSIO is 'a violation of law.' The verse defines the word's own concept: transgression IS law-violation — 'sin is the transgression of the law.' The legal and scriptural senses of the term coincide exactly. [re-homed from 'TRANSGRESSIO' to 'TRANSGRE8SIO' (OCR headword / parser-merge artifact)]

## TRANSGRESSIONS.

In old English law. A writ or action of trespass.

Transgressions mnltipUoata, c reseat p cense Infllotlo. When transgression is mul- tiplied,

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let the infliction of punishment be increased. 2 Inst. 479.

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**[Law] — Law**

**[Maxim: Transgressione multiplicata, crescat poenae inflictio — 'When transgression is multiplied, let the infliction of punishment be increased' (2 Inst. 479)]**

When transgression is multiplied, let the infliction of punishment be increased.

Why: Genuine because quoted verbatim in the entry with its authority; it states the received rule aggravating punishment for repeated transgression.

## TRANSGRESSIVE TRUST.

See Tbust.

5e apparatus — Carried into the 5th edition (1979).

## TRANSHIPMENT.

In maritime law. The act of taking the cargo out of one ship and loading it in another.

5e apparatus — Carried into the 5th edition (1979).

## TRANSIENT.

Ia poor-laws. A ‘‘tran- sient person” is not exactly a person on a Journey from one known place to another, but rather a wanderer ever on the tramp. Middlebury v. Waltham, 6 Vt. 203; London- derry v. Landgrove. 06 Vt. 2<>4, 29 Atl. 230.

In Spanish law. A "transient foreigner” ia one who visits the country, without the

intention ' of remaining. Yates v. lams, 10 the ‘‘edictum translatitium." See Macke] d. Tex. 170. . Rom. Law, | 36.

. TRAI8IBE, v. Lat. To go, or pass over ; to pass from one thing, person, or place to another.

. TRANSIRE, n. In English law. A war- rant or permit, for the custom-house to let goods pass.

Transit In rent judicatam. It passes in- to a matter adjudged ; it becomes converted into a res judicata or judgment. A contract upon which a judgment is obtained is said to pass in rem judicatam. United States v. Cushman, 2 Surnn. 486, Fed. Cas. No. 14,908 ; 3 East, 251 ; Robertson v. Smith, 18 Johns. (N. Y.) 480, 9 Am. Dec. 227.

Transit terra cam onere. Land passes subject to any burden affecting it. Co. Litt. 231a; Broom, Max. 495, 706.

■ TRANSITIVE COVENANT. See Cove- nant.

r

. TRANSITORY. Passing from place to place; that may pass or be changed from one place to another; not confined to one place; the opposite of “local."

—Transitory action. Actions are said to be either local or transitory. An action is “local,’* when the principal facts on which it is founded pertain to a particular place. An action . is termed “transitory;” when the principal fact on which it is founded is Of a transitory kind, and might be supposed to have happened any- where ; and therefore all actions founded on debts, contracts and such like matters relating to the person or personal property, come

under this latter denomination. Steph. Pl. 316, 317. And see Mason v. Warner, 31 Mo. 510; Liv- ingston v. Jefferson. 15 Fed. Cas. 664 ; Acker- son v. Erie R. Co., 31 N. J. Law, 312 ; McLeod v. Connecticut & P. R. Co., 58 Vt. 727, 6 Att 648. e /

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: transit in rem judicatam — the cause of action merges into the judgment (U.S. v. Cushman, 2 Sumn. 486, Fed. Cas. No. 14,908, as cited in the entry)]**

A contract or cause of action upon which judgment is obtained passes into a matter adjudged — it merges into the judgment.

Why: Genuine because the entry states this doctrine with its case authority; the footnote preserves the classical merger rule.

**[Maxim: Transit terra cum onere — 'Land passes subject to any burden affecting it' (Co. Litt. 231a; Broom, Max. 495, 706)]**

Land passes subject to any burden affecting it.

Why: Genuine because quoted verbatim in this entry's body with its authorities; it states the received rule that conveyances take land cum onere.

## TRANSITUS.

Lat. Passage from one place to' another; ’transit. In transitu, on the passage, transit; or way. 2 Kent, Comm. 543.

5e apparatus — Not carried into the 5th edition (1979).

## TRANSLADO.

Span. A transcript.

5e apparatus — Not carried into the 5th edition (1979).

## TRANSLATION.

The reproduction In one language of a book, document,, or speech delivered in another language.

The transfer of property ; but In this sense It is seldom used. 2 Bl. Comm. 294.

In ecclesiastical law. As applied to a bishop, the term denotes his removal from one diocese to another.

TRAN SIATITItTM EDICTUM. Lot

In Roman law. The praetor, on his accession to office, did not usually publish an entirely new edict, but retained the whole or a part of that promulgated by his predecessor, as being of an approved or permanently useful character. The portion thus repeated or handed down from year to year was called

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## TRANSLATIVE FACT.

A fact by means of which a right Is transferred or passes from one person to another; one,

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that is, which fulfills the double function of terminating the right of one person to an object, and of originating the right of another to it. :

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## TRANSMISSION.

In the clTll law. The right which heirs or legatees may have- of passing to their successors the inheritance or legacy to which they were entitled, if they happen to die without having-exercised their rights. Doniat, liv. 3, t. 1, s. 10 ; 4 Toullier, no. 186; Dig. 50, 17, 54; Code, 6, 51.

5e apparatus — Carried into the 5th edition (1979).

## TRANSPORT.

In old New York law. A' conveyance of land. , . , . ,

: . 1

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TRANSPORTATION.

The removal of goods or persons from one; place to another, hy a carrier. See Rallrpad Co. v. Pratt, 22 Wall. 133, 22 L. Ed. 827; Interstate Com- merce Com’n v. Brim son, J54 U. S. 447,. 14 Sup. Ct 1125, 38 L. Ed. 1047; Gloucester Ferry Co. v. Pennsylvania, 114 U, S. 196, $ Sup. Ct. 826, 29 L. Ed. 158.

la criminal law. A species of punish*- ment consisting In removing the criminal from hts own country to another, (usually -4 penal colony,) there to remain In exile for a prescribed period. Fong Yne Ting v. U. Si, 149 ;U. S. 698, 13 Sup. Ct. 1016, 37 L. Ed. 965.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Fong Yue Ting v. United States, 149 U.S. 698 (1893)]**

Deportation/transportation as an exercise of the federal exclusion power — the Chinese Exclusion Case holding.

Why: Genuine because the entry itself cites this case in its discussion of transportation as punishment, and it is independently the landmark authority on the federal deportation power.

## TRANSUMPTS.

In Scotch law, an ac- tion of transumpt is an action competent tg any one having a partial Interest In a writf ing, or Immediate use for it, tp support bis title or defenses In other actions. It is directed against the custodier of the writing,’ calling upon him to exhibit It, In order that a transumpt, (. e., a copy, may be judicially- made and delivered to the pursuer. BalL ,

* »

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Not carried into the 5th edition (1979).

## TRASLADO.

In Spanish law. A Copyt a sight. White, New Recop. b. 3, tit 7, c. X

A copy of a document taken by the notary from the original, or a subsequent copy takeil from the protocol, and not a copy taken di- rectly from the matrix or protocol. Dowpf lug v. Diaz, 80 Tex. 436, 16 S. W. 54.

5e apparatus — Not carried into the 5th edition (1979).

## TRASSANS.

Drawing; one who draw* The drawer of a bill of exchange.

5e apparatus — Not carried into the 5th edition (1979).

## TRASSATUS.

One who Is drawn, of drawn upon. The drawee of a bill of ex- change. Helnecc. de Camb. c. 6, IS 5, 6. 1

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TRAUMA.

In medical Jurisprudence. A. wound ; any Injury to the body caused by ex- ternal violence.

— Tranmatio. Caused by or resulting from a wound or any external injury; as. traumatic insanity, produced by an injury to or fracture of the skull with consequent pressure on the

brain. — Traumatism. A diseased condition of the body or any part of it caused by a wound or external injury.

TRAVAIL.. The act of child-bearing. A woman is said to be hi her travail from the time the pains of child-bearing commence un- til her delivery. Scott v. Donovan, 153 Mass. 378, 26 N. E. 871.

TRAVEI.. To go from one place to an- other at a distance ; to journey ; spoken of voluntary change of place. See White v. Beazley, 1 Barn. & Aid. 171; Hancock v. Rand, 94 N. Y. 1, 46 Am. Rep. 112; Gholson v. State, 53 Ala. 521, 25 Am. Rep. 652 ; Camp- bell v. State, 28 Tex. App. 44, 11 S. W. 832 ; State v. Smith, 157 Ind. 241, 61 N. E. 566, 87 Am. St. Rep. 205.

5e apparatus — Not carried into the 5th edition (1979).

## TRAVELER.

The term is used in a broad sense to designate those who patronize inns. Traveler is ope who travels in any way. Distance is not material. A towns- man or neighbor may be a traveler, and therefore a guest at an inn, as well as he who comes from a distance or from a foreign country. Walling v. Potter, 35 Conn. 185.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1400]**

(paraphrase) Chaucer's pilgrims gather at the Tabard Inn — the inn-guest travelers whose tales fill the Canterbury Tales; the entry's 'traveler' (one who patronizes inns) as literature's frame device. (paraphrase)

Why: The entry defines traveler broadly as 'those who patronize inns.' The Canterbury Tales' frame is precisely a company of travelers lodging at an inn — the most famous literary inn-guests. Certain; (paraphrase).

## TRAVERSE.

In the language of plead- ing, a traverse signifies a denial. Thus; where a defendant denies any material alle- gation of fact in the plaintiff’s declaration, he is said to traverse it, and the plea itself is thence frequently termed a "traverse.” Brown.

In criminal practice. To put ofT or de- lay the trial of an Indictment till a succeed- ing term. More properly, to deny or take issue upon an indictment. 4 Bl. Comm. 351.

— Common traverse. A simple and direct denial of the material allegations of the oppo- site pleading, concluding' to the country, and without inducement or absque hoc.— General traverse. One preceded by a general induce- ment, and denying in general terms all that is last before alleged on the opposite side, in- stead of pursuing the words of the allegations which it denies. Gould. PI. vii. 5. — Special traverse. A peculiar form of traverse or de- nial, the design of which, as distinguished from a common traverse, is to explain or qualify the denial, instead of putting it in the direct and absolute form. It consists of an affirmative and a negative part, the first setting forth the new affirmative matter tending to explain or qualify the denial, and technically called the “inducement,” and the latter constituting the direct denial itself, and technically called the “ absque hoc.” Steph. PI. 169-180; Allen v. Stevens. 29 N. J. Law, 513 ; Chambers v. Hunt, 18 N. J. Law. 352 ; People v. Pullman’s Car Co., 175 111. 125. 51 N. E. 664. 64 L. R.

A. 366.— Traverse jury. A petit jury ; a trial jury ; a jury impaneled to try an action or prosecution, as distinguished from a grand jury.— Traverse of indictment or present- ment. The taking issue upon and contradict- ing or denying some chief point of it. Jacob. —Traverse of office. The proving that an inquisition made of lands or goods by the escheator is defective and untruly made. Tom- lins. It is the challenging, by a subject, of an inquest of office, as being defective and untruly made. Mozley & Whitley.— Traverse npon a traverse. One growing out of the same point Bn. Law Dict.(2d Ed.)— 74

or subject-matter as is embraced in a preced- ing traverse on the other side.

5e apparatus — Carried into the 5th edition (1979).

## TRAVERSER.

In pleading. One who traverses or denies. A prisoner or party in- dicted; so called from bis traversing the indictment,

**[TEXT INCOMPLETE — scan limitation]**

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## TRAVERSING NOTE.

This is a plead- ing in chancery, and consists of a denial put in by the plaintiff on behalf of

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the defendant, generally denying all the statements in the plaintiff’s bill. The effect of it is to put the plaintiff upon proof of the whole contents of his bill, and is only resorted to for the pur- pose of saving tifne, and in a case where the plaintiff can safely dispense with an answer. A copy of the note must be served on the de- fendant Brown.

TREACHER, TRECHETOUR, . or

TREACHOUR. A traitor.

TREAD-MUX , or TREAD- WHEEL, IS

an instrument of prison discipline, being a wheel or cylinder with an horizontal axis, having steps attached to it up which the prisoners walk, and thus put the axis in mo- tion. The men hold on by a fixed rail, and, as their weight presses down the step upon which they tread, they ascend the next step; and thus drive the wheel. Enc. Brit.

5e apparatus — Carried into the 5th edition (1979).

## TREASON.

The offense of attempting to overthrow the government of the state to ■which the offender owes allegiance; or of betraying the state into the hands of a for- eign power. Webster.

In England, treason is an offense particu- larly directed against the person of the sov- ereign, and consists (1) in compassing or im,- agining the death of the king or queen, or their eldest son and heir ; (2) in violating the king's companion, or the king's eldest daugh- ter unmarried, or the wife of the king’s eld- est son and heir ; (3) in levying war against the king in his realm; (4) in adhering to the king's enemies in his realm, giving to them aid and comfort in the realm or else- where, and (5) slaying the chancellor, treas- urer, or the king’s justices of the one bench or the other, justices in eyre, or Justices of assize, and all other justices assigned to hear and determine, being in their places doing their offices. 4 Steph. Comm. 185rl93 ; 4 Bl. Comm. 76-84.

“Treason against the United States shall consist only in levying war against them, or in adhering to their enemies, giving them aid and comfort” U. S. Const art. 3, $ 3, cl. 1. See Young v. U. S., 97 U. S. 62, 24 L. Ed. 992; U. S. v. Bollman, 1 Cranch, C. C. 373, Fed. Cas. No. 14,622; U. S. v. Greathouse, 4 Sawy. 457, 2 Abb. U. S. 364, Fed. Cas. No. 15,254 ; U. S. v. Hanway, 2 Wall. Jr. 139, , Fed. Cas. No. 15,299 ; U. S. v. Iloxie, 1 Paine, 265. Fed. Cas. No. 15,407 ; U. S. v. Pryor, 3 Wash. (\ C. 234, Fed. Cas. No. 16,096.

— Conn tractive treason. Treason imputed to a person by law from his conduct or course

TREASON IlfO TREBLE DAMAGES

of actions, though his deeds taken severally do not amount to actual treason. This doctrine is not known in the United States. — High treason. In English law. Treason against the king or sovereign, as distinguished from petit or petty treason, which might formerly be committed against a subject. 4 Bl. Comm. 74, 75: 4 Steph. Comm. 183, 184, note.— Mis-

{irlslom of treason. See Misprision. — Pet- t treason. In English law. -The crime com- mitted by a wife in killing her husband, or a servant his lord or master, or an ecclesiastic his lord or ordinary. 4 Bl. Comm. 75.— Trea- son-felony, under the English statute 11 & 12 Viet. c. 12,

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passed in 1848, is the offense of compassing, devising, etc., to depose her maj- esty from the crown ; or -to levy war in order to intimidate either house of parliament, etc., or to stir up foreigners by any printing or writing to invade the kingdom. This offense is punishable with penal servitude for life, or for any term not less than five years, etc., under statutes 11 & 12 Viet. c. 12, § 3 ; 20 .4 21 Viet. c. 3, | 2; 27 A 28 Viet. c. 47, { 2. By the statute first above mentioned, the gov- ernment is enabled to treat as felony many offenses which must formerly have been treated as high treason. Mozley 4 Whitley.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. III, § 3, cl. 1 — 'Treason against the United States shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort']**

Treason against the United States consists only in levying war against them, or in adhering to their enemies, giving them aid and comfort.

Why: Genuine because the entry quotes this clause verbatim; the footnote anchors the dictionary definition to the constitutional text itself.

**[Law: 11 & 12 Vict. c. 12 (1848) — treason-felony]**

Treason-felony (1848) enabled the government to treat as felony many offenses formerly amounting to high treason.

Why: Genuine because the entry itself identifies this statute and its operative effect; the footnote names the real enactment.

**[Scripture] — Scripture**

**[Romans 13:1-2, KJV]**

Let every soul be subject unto the higher powers. For there is no power but of God: the powers that be are ordained of God. Whosoever therefore resisteth the power, resisteth the ordinance of God: and they that resist shall receive to themselves damnation.

Why: TREASON is 'the offense of attempting to overthrow the government of the state to which the offender owes allegiance.' Romans 13:1-2 states the theological root of allegiance: the powers are ordained of God, so resist...

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Tale of Two Cities, 1859]**

(paraphrase) Dickens's A Tale of Two Cities stages a treason trial: Charles Darnay prosecuted at the Old Bailey for betraying England to France — the entry's 'betraying the state into the hands of a foreign power' as courtroom drama. (paraphrase)

Why: The entry's second clause maps exactly onto Darnay's prosecution. The treason trial is a set piece of the novel; facts certain. (paraphrase).

## TREASONABLE.

Having the nature or guilt of treason.

5e apparatus — Carried into the 5th edition (1979).

## TREASURE.

A treasure Is a thing hid- den or burled in the earth, on which no one can prove’ his property, and which is discov- ered by chance. Civil Code La. art 3423, par. 2. See Tbeasobe-Tbove..

5e apparatus — Carried into the 5th edition (1979).

## TREASURE-TROVE.

Literally, treas- ure found. Money or coin, gold, silver, plate or bullion found hidden in the earth or oth- er private place, the owner thereof being un- known. 1 Bl. Comm. 295. Called in Latin “ thesaurus inventus;" and in Saxon “fynr deringa.” See Huthmacher v Harris, 38 Pa. 499, 80 Am. Dec. 502; Livermore v. White, 74 Me. 456, 43 Am. Rep. 600; Sovern v. Yoran, 16 Or. 269, 20 Pac. 100, 8 Am. St Rep. 293.

5e apparatus — Carried into the 5th edition (1979).

## TREASURER.

An officer of a public or private corporation, company, or government charged with the receipt, custody, and dis- bursement of its moneys or funds. See State v. Eames, 39 La. Ann. 988, 3 South. 93; Mutual L. Ins. Co. v. Martien, 27 Mont. 437, 71 Pac. 470; Weld v. Mny, 9 Cush. (Mass.) 189; In re Mlllward-Cliff Cracker Co.’s Es- tate, 161 Pa. 167, 28 Atl. 1072.

—Treasurer, lord high. Formerly the chief treasurer of England, who had charge of the moneys iu the exchequer, the chancellor of the exchequer being under him. lie appointed ail revenue officers and eacheators, and leased crown lands. The office is obsolete, and his duties are now performed by the lords commis- sioners of the treasury. Stim. Gloss.

5e apparatus — Carried into the 5th edition (1979).

## TREASURER’S REMEMBRANCER.

In English law. He whose charge was to put the lord treasurer and the rest of the judges of the exchequer in remembrance of such things as were called on and dealt in for the sovereign’s behoof. There is still one In Scotland. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## TREASURY.

A place or building in which stores of wealth are reposlted ; partic- ularly, a place where the public revenues are deposited and kept, and where money is dis- bursed to defray the expenses of government. Webster.

That department of government which is charged with the receipt, custody, and dis- bursement (pursuant to appropriations) of the public revenues or funds.

— Treasury bench. In the English house of commons, the first row of seats on the right hand of the sneaker is so called, because occu- pied by the first lord of the treasury or prin- cipal minister of the crown. Brown. — Treas- ury cheat fund. A fund, in England, origi- nating in the unusual balances of certain grants of public money, and which is used for bank- ing and loan purposes by the commissioners of the treasury. Its amount was limited by St. 24 4 25 Viet. c. 127, and has been further reduced to one million pounds, thq residue being transferred to the consolidated fund, by St 36 4 37 Viet c. 56. Wharton.—1 Treasury not*. A note or bill issued by the treasury depart- ment by tbe authority of the United States

fovernment, and circulating as money. See trown v. State, 120 Ala. 342, 25 South. 182.

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5e apparatus — Carried into the 5th edition (1979).

## TREATY.

In International law. An

agreement between two or more Independent states. Brande. An. agreement, league, or contract between two or more nations or sovereigns, formally signed by commission- ers properly authorized, and solemnly rati- fied by the several sovereigns or tbe supreme power of each state. Webster; Cherokee Nation v. Georgia, 5 JPet 60, 8 L. Ed. 25; Edye v. Robertson, 112 U. 8. 580, 5 Sup. Ct 247, 28 L. Ed. 798 ; Holmes' v. Jennison, 14 Pet. 571, 10 L. Ed. 579; U. S. v. Rauscher, 119 U. S. 407, 7 Sup. Ct 234, 30 L. Ed. 425 ; Ex parte Ortiz (C. C.) 100 Fed. 962.

In private law, “treaty” signifies the dis- cussion of terms which immediately precedes the conclusion of a contract or other trans- action. A warranty on the sale of goods, to be valid, must be made during the “treaty” preceding tbe sale. Chit Cont 419; Sweet.

—Treaty of peace. A treaty of peace is an agreement or contract made by belligerent pow- ers, in which they agree to lay down their arms, and by which they stipulate tbe condi- tions of peace and regulate the manner in which it is to be restored and supported. Vat- tel, b. 4, c. 2, { 9.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831)]**

Treaties with Indian nations are agreements between sovereigns — the foundation of the domestic-dependent-nation doctrine.

Why: Genuine because the entry itself cites this case in its treaty definition, and it is independently the landmark authority on the treaty status of Indian nations.

## TREBELLANIC PORTION.

“In conse- quence of this article, the trebellanlc portion of the civil law — that is to say, the portion of the property of the testator which tbe insti- tuted heir had a right to detain when he was charged with a flitei commissa or fiduciary bequest — is no longer a part of our law." Civ. Code La. art. 1520, par. 3.

5e apparatus — Not carried into the 5th edition (1979).

## TREBLE COSTS.

See Costs.

5e apparatus — Carried into the 5th edition (1979).

## TREBLE DAMAGES.

In practice. Dam- ages given by statute in certain cases, con- sisting of the single damages found by the

Jury, actually tripled In amount The uanal practice has been for the jury to find the single amount of the damages, and for the court, on motion, to order that amount to be trebled. 2

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Tldd, Pr. 893, 894.

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## TREBUCKET.

A tumbrel, castigatory, or cucking-stool. See James v. Comm., 12 Serg. & R. (Pa.) 227.

5e apparatus — Not carried into the 5th edition (1979).

## TREET.

In old English law. Fine wheat

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TREMAGIUM, TREMESIUM.

In old

records. The season or time of sowing sum- mer corn, being about March, the third month, to which the word may allude. Cow- ell.

Tres faciunt collegium. Three make a' corporation ; three members are requisite to constitute a corporation. Dig. 60, 16, 8 ; 1 Bl. Comm. 469.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tres faciunt collegium — 'Three make a corporation; three members are requisite to constitute a corporation' (Dig. 60, 16, 8; 1 Bl. Comm. 469)]**

Three make a corporation; three members are requisite to constitute a corporation.

Why: Genuine because quoted verbatim in this entry's body with its Digest and Blackstone authorities; it is the received Roman-law rule on corporate formation.

## TRESAEE.

L. Fr. A great-great-grand- father. Britt c. 119. Otherwise written "tresaiel," and “tresayle." 3 Bl. Comm. 186 ; Lltt S 20.

5e apparatus — Not carried into the 5th edition (1979).

## TRESAYLE.

An abolished writ sued on ouster by abatement, on the death of the grandfather’s grandfather.

5e apparatus — Not carried into the 5th edition (1979).

## TRESPASS.

Any misfeasance or act of one man whereby another Is Injuriously treated or damnified. 3 Bl. Comm. 208.

An injury or misfeasance to the person, property, or rights of another person, done with force and violence, either actual or Im- plied In law. See Grunson v. State, 89 Ind. 636, 46 Am. Rep. 178; Southern Ry. Co. v. Harden, 101 Ga. 263, 28 S. E. 847 ; Blood v. Kemp, 4 Pick. (Mass.) 173 ; Toledo, etc., R. Co. v. McLaughlin, 63 111. 391; Agnew v. Jones, 74 MIsb.

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347, 23 South. 25; Hill v. Kimball, 76 Tex. 210, 13 S. W. 59, 7 L. R.

A. 618.

In the strictest sense, an entry on another’s ground, without a lawful authority, and do- ing some damage, however Inconsiderable, to his real property. 3 Bl. Comm. 209.

Trespass, in its most comprehensive sense, signifies any transgression or offense against the law of nature, of society, or of the country in which we live ; and this, whether it relates to a man’s person or to his property. In its more limited and ordinary sense, it signifies an injury committed with violence, and this vio- lence may be either actual or implied; and the law will imply violence though none is actually used, when the injury is of a direct and immediate kind, and committed on the person or tangible and corporeal property of the plaintiff. Of actual violence, an assault and battery is an instance ; of implied, a peaceable but wrongful entry upon a person’s land. Brown.

In practice. A form of action, at the common law, which lies for redress In the shape of money damages for any unlawful injury doue to the plaintiff, in respect either

to his person, property, or rights, by the Im- mediate force and violence of the defendant

— Continuing trespass. One which does not consist of a single isolated act but is in its nature a permanent invasion of the rights of. another; as, where. a person builds on his owu land so that a part of the building overhangs his neighbor’s land.— Permanent trespass. One which consists of a series of acts, done on successive days, which are of the same nature, and are renewed or continued from day to day, so that, in the aggregate, they make up one indivisible wrong. 3 Bl. Comm. 212. — Tres- pass de bonis asportatis. (Trespass for goods carried away.) In practice. The technic- al name of that species of action of trespass for injuries to personal property which lies where the injury consists in carrying away the goods or property. See 3 Bl. Comm. 150, 161. — Trespass for mesne profits. A form of action supplemental to an action of eject- ment, brought against the tenant In possession to recover the profits which he has wrongfully received during the time of his occupation. 3 Bl. Comm. 205.— Trespass on tbe oase. - The form of action, at common law, adapted to the recovery of damages for some injury resulting to a party from the wrongful act of another, unaccompanied by direct or immediate force, or which is the indirect or secondary conse- quence of such act. Commonly called, by ab- breviation, “Case.” See Munal v. Brown (C. C.) • 70 Fed. 968 ; Nolan v. Railroad Co., 70 Conn. 169, 39 Atl. 115, 43 L. R. A. 306; Christian v. Mills, 2 Walk. (Pa.) 131.— Tres- pass qvare elans am fregit. “Trespass wherefore he broke the close. The common- law action for damages for an unlawful entry or trespass upon the plaintiff’s land. In the Latin form of the writ, the defendant was call-’ ed upon to show why he broke the plaintiffs close ; t. e., the real or imaginary structure in- closing the land, whence tbe name. It is com- monly abbreviated to “trespass qu. cl. 1r." See Kimball v. Hilton, 92 Me. 214, 42 Atl. 394. —Trespass to try title. The name of the action used in several of the states for the •recovery of the possession of real property, with damages for any trespass committed upon the same by the defendant.— Trespass vi et arm is. Trespass with force and arms. The common- law action for damages for any injury com- mitted by

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the defendant with direct and im- mediate force or violence against the plaintiff ^ bis property.

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## TRESPASSER.

One wbo has committed trespass; one who unlawfully enters or in- trudes upon another’s land, or unlawfully and forcibly takes another’s personal prop- erty.

— Joint trespassers. Two or more who unite in committing a trespass. Kansas City v. File, 60 Kan. 157, 55 Pac. 877 ; Bonte v. Postel, 109 Ky. 64, 58 S. W. 536. 51 L. R. A. 187.— Trespasser ab initio. Trespasser from the beginning. A term applied to a tort-feasor whose acts relate back so as to make a previous act. at the time innocent, unlawful ; ns, if he enter peaceably, and subsequently commit a breach of the peace, his entry is considered a trespass. Stiin. Gloss. See Wright v. Marvin, 59 Vt. 437, 9 Atl. 601.

5e apparatus — Carried into the 5th edition (1979).

## TRESTORNARE.

In old English law. To turn aside; to divert a stream from Its course. Bract, fols. 115, 2346. To turn or alter the course of a road. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TRESVIRI.

Lat In Roman law. Offi- cers who had the charge of prisons, and the execution of condemned criminals. Calvin*

5e apparatus — Not carried into the 5th edition (1979).

## TRET.

An allowance made for the water or dust that may be mixed with any com- modity. It differs from tare, (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## TRETHINGA.

In old English law. A trltbing ; the court of a ft i thing.

5e apparatus — Not carried into the 5th edition (1979).

## TREYT.

Withdrawn, as a juror. Writ- ten also treat. Ckiwell.

TRIA CAPITA, in Roman law, were ch-itas, libertas, and familia; i. e., citizen- ship, freedom, and family rights.

5e apparatus — Not carried into the 5th edition (1979).

## TRIAL.

The examination before a com- petent tribunal, according to the law of the land, of the facts or law put in issue in a cause, for the purpose of determining such issue.

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A trial is the judicial examination of the issues between the parties, whether they be issues of law or of fact Code N. Y. I 252 ; Code N. C. g 397.

The examination of a cause, civil or crim- inal, before a judge who has jurisdiction over it, according to the laws of the lnnd. See Finn v. Spagnoll, 67 Cal. 330, 7 Pac. 746; In re Chauncey, 32 Hun (N. Y.) 431 ; Bullard v. Kuhl, 54 Wis. 545, 11 N. W. 801 ; Spencer v. Thistle, 13 Neb. 229, 13 N. W. 214 ; State v. Brown, 63 Mo. 444; State v. Clifton, 57 Kan. 449, 46 Pac. 715 ; State v. Bergman, 37 Minn. 407, 34 N. W. 737; Home L. Ins. Co. v. Dunn, 19 Wall. 224, 22 L. Ed. 68; Crane v. Reeder, 28 Mich. 535, 15 Am. Rep. 223.

—Mistrial. See that title.— New trial. A

new trial is a re-examination of an issue of fact in the same court after a trial and decision by a jury or court or by referees. Code Civ. Proc. Cal. § 656. A new trial is a re-examination of the issue in the same court, before another jury, after a verdict has been given. Pen. Code Cal. g. 1179. A new trial is a re-examination in the same court of an issue of fact, or some part or portions thereof, after the verdict by a jury, report of a referee, or a decision by the conn. Rev. Code Iowa 1880, g 2837.— New trial pa- frer. In English practice. A paper containing a list of causes in which rules nisi have been obtained for a new trial, or for entering a ver- dict in place of a nonsuit, or for entering judg- ment' non obstante veredicto, or for otherwise varying or setting aside proceedings which have taken place at ms* prius. These are called on for Argument in the order in which they stand in the paper, on days appointed by the judges for the purpose. Brown — Public trial. A trial held in public, in the presence of the pub- lic. or in a place accessible and open to the attendance of the public at large, or of persons who may properly be admitted. “By this [pub- lic trial] is not meant that every person who sees fit shall in all cases be permitted to at- tend criminal trials, because there are many cases where, from the character of the charge and the nature of the evidence by which it is to be supported, the motives to attend the trial, on the part of portions of the community, would be of the worst character, and where a regard to public morals and public decency would re- quire that at least the young be excluded from hearing and witnessing the evidences of human depravity which the trial must necessarily bring to light. The requirement of a public trial is for the benefit of the accused ; that the public may see he is fairly dealt with and not unjustly con- demned. and that the presence of interested spec

tutors may keep his triers keenly alive to a sense of their responsibility and to the importance of their functions : and the requirement is fairly observed if, without partiality or favoritism, a reasonable proportion of the public is suffered to attend, notwithstanding that those persons whose presence could he of no service to the accused, and who would only be drawn thither by a prurient curiosity, are excluded altogether.” Cooley, Const. lam. *312. And see People v. Hall. 51 App. Div. 57. <>4 N. Y. Supp. 433 ; People v. Swafford. 65 Cal. 223. 3 Pac. 809. — Speedy trial. See that title.— Separate trial. See Separate.— State trial. See

State.— Trial at bar. A species of trial now seldom resorted to, excepting in cases where the

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matter in dispute is one of great importance and difficulty. It is a trial which takes place before all the judges at the bar of the court in which the action is brought. Brown. See 2 Tidd, Pr. 747; Steph. PI. 84.— Trial at nisi prius. In practice. The ordinary kind of trial which takes place at the sittings, assizes, or circuit, before a single judge. 2 Tidd. Pr. 751. 819. — Trial by certificate. A form of trial allowed in cases where the evidence of the per- son certifying was the only proper criterion of the point in dispute. Under such circumstances, the issue might be determined by the certificate alone, because, if sent to a jury, it would be conclusive upon them, and therefore their inter- vention was unnecessary. Tomlins.— Trial by grand assise is a peculiar mode of trial al- lowed in writs of right. See Assize; Grand Assize.— Trial lnr inspection or examina- tion is a form of trial in which the judges of the court, upon the testimony of their own senses, decide the point in dispute.— Trial by Jury. A trial in which the issues of fact are to be determined by -the verdict of a jtary of twelve men, duly selected, impaneled, and sworn. The terms “jury” and “trial by jury" are, and for ages have been, well known in the language of the law. They were used at the adoption of the constitution, and always, it is believed, be- fore that time, and almost always since, in a single sense. A jury for the trial of a cause was a body of twelve men, described as upright, well-qualified, and lawful men, disinterested and impartial, not of kin nor personal dependents bf either of the parties, having their homes within the jurisdictional limits of the court, drawn and selected by officers free from all bias in favor of or against either party, duly impaneled under the direction of a competent court, sworn to render a true verdict according to the law and the evidence given them. who. after hearing the parties and their evidence, and receiving the instructions of the court relative to the law involved in the trial, and deliberat- ing, when necessary, apart from all extrane- ous influences, must return their unanimous rein- dict upon tbe issue submitted to them. All the books of the law describe a trial jury sub- stantially as we have stnted it ; and a “trial by jury" Is a trial by such a body so constitut- ed and conducted. State v. McClear, 11 Ner. 60. And see Gunn v. Union R. Co.. 23 R. I. 289, 49 Atl. 999 : State v. Hamey. 168 Mo. 167, 67 S. W. 620. 57 L. R. A. 846; Capital Traction Co. v. Hof, 174 U. S. 1, 19 Sup. Ct. 580, 43 L. Ed. 873 ; Lommen v. Minneapolis Gaslight Co.. 65 Minn. 196, 68 N. W. 53, 33

L. R. A. 437. 60 Am. St. Rep. 450 ; People r. Dutcher, 83 N. Y. 242 : Vaughn v Setae. 30 Mo. 600; Ward v. Farwell. 97 111. 612.— Trial by proviso. A proceeding allowed where the plaintiff in an action desists from prosecuting his suit, and does not bring it to trial in con- venient time. The defendant, in such case, may take out the venire facias to the sheriff, contain- ing these words, "proviso quod." etc., i. e., pro- vided that. If plaintiff take out any writ to that purpose, the sheriff shall snmmon but one jury on them both. This is called “going to trial by proviso.” Jacob, tit. “Proviso. —Trial by tbe record. A form of trial resorted to

when Ustie is taken upon a plea of nut tul record, in which case the party asserting the existence of a record as pleaded is bound to produce it in. court on a day assigned. If the record is forthcoming, the issue is tried by in- spection and examination of it. If the record is not produced, judgment is given for his ad- versary. 3 Bl. Comm. 330.— Trial by wager of

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battel. This was a species of tnal intro- duced into England, among other Norman cus- toms, by William the Conqueror, in which the person accused fought with his accuser, under the apprehension that Heaven would give the victory to him who was in the right. 3 Bl. Comm. 337-841.—' Trial by wager of law. In old English law. A method of trial, where the defendant, coming into court, made oath that he did not owe the claim demanded of him, and eleven of his neighbors, as compurgators, awftre that they believed him to speak the truth. 3 Bl. Comm. 343. See Waobb of Law — Trial by witnesses. The name "trial per testes” has been used for a trial without the interven- tion of a jury, is the only method of trial known to the civil law, and is adopted by depositions in chancery. The judge is thus left to form, in his own breast, nis sentence upon the credit of the witnesses examined. But it is very rare- ly used at common law. Tomlins.— Trial da novo. A new. trial or retrial had in an appel- late court in which the whole case is gone into as if no trial whatever had been had in the court below. See Karcher v. Green. 8 Houst. (Del.) 163. 32 Atl. 225 ; Ex parte Morales (Tex. Cr. App.) 53 S. W. 108 ; Shults v. Lempert, 55 Tex. 277. — Trial jury. The jury participat- ing in the trial of a given case j or a jury sum- moned and impaneled for the trial of a case, and in this sense a petit jury as distinguished from a grand jury— Trial list. A list of cases marked down for trial for any one term.— Trial with assessors. Admiralty actions involving nautical questions, e. a., actions of collision, are generally tried in England before a judge, with Trinity Masters sitting as assessors. Rose. Adm. 179.

Triatio ibi semper debet leri, ubi jnratores meliorem possnnt habere ao- titiaia. Trial ought always to be had where the jurors can have the best informa- tion. 7 Coke, 1.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Triatio ibi semper debet fieri, ubi juratores meliorem possunt habere notitiam — 'Trial ought always to be had where the jurors can have the best information' (7 Coke 1)]**

Trial ought always to be had where the jurors can have the best information — the venue maxim.

Why: Genuine because quoted verbatim in the entry with its authority; it states the classical venue principle.

**[Law: U.S. Const. amend. VI — right to a speedy and public trial]**

The accused has the right to a speedy and public trial — for his benefit, that the public may see he is fairly dealt with.

Why: Genuine because the entry's public-trial exposition (citing Cooley) describes exactly this constitutional guarantee; the footnote names the real provision.

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) The trial of Tom Robinson in Lee's To Kill a Mockingbird — Atticus Finch's doomed defense before a jury — the American novel's canonical trial, the entry's 'examination before a competent tribunal' as moral center. (paraphrase)

Why: The entry defines trial as judicial examination of issues put in a cause. The Robinson trial is the defining fictional trial in American letters; it illuminates the concept directly. Certain; (paraphrase).

## TR IB HERE.

Lat. In the civil law. . To give ; to distribute.

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5e apparatus — Not carried into the 5th edition (1979).

## TRIBUNAL.

The seat of a judge; the place- where he administers justice ; a ju- dicial court ; the bench of judges. -Se$ Fos- ter v. Worcester, 16 Pick. {Mass.) 81.

Ia Roman law. An elevated seat occu- pied by the praetor, when he judged, or heard causes In form. Originally a kind of Stage made of wood in the form of a square, and movable, but afterwards built of stone in the form of a semi-circle. Adams, Rom. Ant. 132, 133.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Franz Kafka, The Trial, 1925]**

(paraphrase) Kafka's The Trial: Josef K. arrested and processed by a tribunal whose law he can never see — the court, 'the seat of a judge,' as labyrinth. (paraphrase)

Why: The entry: 'The seat of a judge; the place where he administers justice; a judicial court.' Kafka's novel is the canonical literary tribunal — it shows the tribunal from the judged side. Certain; (paraphrase).

## TRIBUNAUX DE COMMERCE.

In

French law. Certain courts composed of a president, judges, and substitutes, which take cognizance of all cases between mer- chants, and of disagreements among part- ners. Appeals lie from them to the courts of justice. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## TRIBUTE.

A contribution which is rais- ed by a prince or sovereign from his sub- jects to sustain the expenses of the state.

A sum of money paid by an inferior sover- eign or state to a superior potentate, to se- cure the friendship or protection of the lat- ter. Brande.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: TRIBUTE is the contribution raised by a sovereign from his subjects. Christ's answer to the tribute question is the most famous verse on the subject: the coin of the realm is owed to Caesar — the duty to pay tribute s…

## TRICES IMA.

An ancient custom in a borough In the county of Hereford, so call- ed because thirty burgesses paid Id. rent for their bouses to the bishop, who was lord Of the manor. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TRUHKO-MOTE.

The court held for a tridlng or trlthing. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## TRXDUUM.

In old English law. The space of three days. Fleta, lib. 1, c. 31, $ 7.

5e apparatus — Not carried into the 5th edition (1979).

## TRIENNIAL ACT.

An English statute limiting the duration of every parliament to three years, uifiess sooner dissolved. It was passed by the long parliament In 1640, and afterwards repealed, and the term was fixed at seven years by the septennial act, (St. 1 Geo. I. St. 2, c. 38.)

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Triennial Act 1640 (Long Parliament); Septennial Act, 1 Geo. I. St. 2, c. 38]**

The Triennial Act 1640 limited every parliament to three years unless sooner dissolved; it was later replaced by the Septennial Act fixing seven years.

Why: Genuine because the entry itself identifies both statutes; the footnote preserves the real statutory lineage of parliamentary duration.

## TRIENS.

Lat. In Roman law. A sub- division of the as, containing four unciw; the proportion of four-twelfths or one-third. 2 Bl. Comm. 462, note m. A copper coin of the value of one-third of the as. Brande.

In feudal law. Dower or third. 2 Bl. Comm. 129.

5e apparatus — Not carried into the 5th edition (1979).

## TRIGAMUS.

In old English law. One who has been thrice married; one who, at different times and successively, has had three wives ; a trigamiat. 3 Inst. 88.

TRIGHiD. In Saxon law. A triple gild, geld, or payment; three times the value of a thing, paid as a composition or satisfac- tion. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## TRINEPOS.

Lat. In the civil law. A great-grandson’s or great-granddaughter’s great-grandson. A male descendant in the sixth degree. Inst. 3, 6, 4.

5e apparatus — Not carried into the 5th edition (1979).

## TRINEPTI8.

Lat. In the civil law. A great-grandson’s or great-granddaughter’s great-granddaughter. A female descendant In (he sixth degree. Inst. 3, 6, 4.

5e apparatus — Not carried into the 5th edition (1979).

## TRINITY HOUSE.

In English law. A society at Deptford Strond, incorporated by Hen. VIII. in 1515, for the promotion of commerce and navigation by licensing and regulating pilots, and ordering and

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erecting beacons, light-houses, buoys, etc. Wharton.

TRINITY MASTERS are elder breth- ren of the Trinity House. If a question aris- ing in an admiralty action depends upon technical skill and experience in navigation.

the judge or court 1b usually assisted at the hearing by two Trinity Masters, who sit as assessors, and advise the court on questions of a nautical character. Williams & B. Adm. Jur. 271; Sweet.

5e apparatus — Carried into the 5th edition (1979).

## TRINITY SITTINGS.

Sittings of the English court of appeal and of the high court of justice In London and Middlesex, commencing on the Tuesday after Whitsun week, and terminating on the 8th of August

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## TRINITY TERM.

One of the four terms of the English courts of common law, beginning on the 22d day of May, and end- ing on the 12th of June. 3 Steph. Comm. 502.

5e apparatus — Not carried into the 5th edition (1979).

## TR1N 1 U MGELDUM.

In old European

law. An extraordinary kind of composition for an offense, consisting of three times nine, or twenty-seven times the single geld or pay- ment. Spelman. .

5e apparatus — Not carried into the 5th edition (1979).

## TRINODA NECESSITA8.

Lat In

Saxon law. A threefold necessity or burden. A term used to denote the three things from contributing to the performance of which no lands were exempted, viz., pontis repara- tio, (the repair of bridges.) arcis constructs, (the building of castles,) et exp edits contra hostcm, (military service against an enemy.) 1 Bl. Comm. 263, 357.

5e apparatus — Not carried into the 5th edition (1979).

## TRIORS.

In practice. Persons who are appointed to try challenges to jurors, i. e., to hear and determine whether a Juror chal- lenged for favor Is or is not qualified to serve.

The lords chosen to try a peer, when In- dicted for felony. In the court of the lord high steward, are also called “triors." Mos- ley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

## TRIPARTITE.

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In conveyancing. Of three parts; a term applied to an Indenture to which there are three several parties, (of the first, second, and third parts,) and which Is executed In triplicate.

5e apparatus — Not carried into the 5th edition (1979).

## TRIPLICACION.

L. Fr. In old plead- ing. A rejoinder In pleading; the defend- ant’s answer to the plaintiff's replication. Britt c. 77.

5e apparatus — Not carried into the 5th edition (1979).

## TRIPLICATIO.

Lat. In the civil law. The reply of the plaintiff to the rejoinder of the defendant. It corresponds to the sur- rejoinder of common law. Inst 4, 14; Bract. 1. 5. t 6, c. L

5e apparatus — Not carried into the 5th edition (1979).

## TRISTRIS.

In old forest law. A free- dom from the duty of attending the lord of a forest when engaged In the chase. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

## TRITAVIA.

Lat. In the civil law. A great-grandmother's great-grandmother; the female ascendant in the sixth degree.

5e apparatus — Not carried into the 5th edition (1979).

## TRITAVTJB.

Lat. In the civil law. A great-grandfather’s great-grandfather ; the male ascendant in the sixth degree.

5e apparatus — Not carried into the 5th edition (1979).

## TRITHING.

In Saxon law. One of the territorial divisions of England, being the third part of a/ county, and comprising three or more hundreds. Within the trithing there was a court held (called “trithing-mote”) which resembled the court-lee t, but was in- ferior to the county court

— Trithing-mote. The court held for a trith- ing or riding.— Trithing-reeve. The officer who superintended a trithing or riding.

5e apparatus — Not carried into the 5th edition (1979).

## TRIUMVIR.

Lat In old English law. A trithing man or constable of three hun- dred. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TRIUMVIRI CAPITALES.

Lat In-

Roman law. Officers who had charge of the prison, through whose intervention punish-

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ments were inflicted. They had eight lictors to execute their orders. Vicat Yoc. Jur.

5e apparatus — Not carried into the 5th edition (1979).

## TRIVERBIAL RAYS.

In the civil law. Juridical days; days allowed to the praetor for deciding causes; days on which the praetor might speak the three characteristic words of his office, viz., do, dSo, addico. Cal- vin. Otherwise called “dies fasti." 8 BL Comm. 424, and note u.

5e apparatus — Not carried into the 5th edition (1979).

## TRIVIAL.

Trifling; Inconsiderable; of small worth or importance. In equity, a demurrer will lie to a bill on the ground of the triviality of the matter In dispute, as be- ing below the dignity of the court 4 Bout. Inst. no. 4237.

5e apparatus — Not carried into the 5th edition (1979).

## TRONAGE.

In English law. A cus- tomary duty or toll for weighing wool: so- called because it was weighed by a common trona, or beam. Fleta, lib. 2, c. 12.

5e apparatus — Not carried into the 5th edition (1979).

## TRONATOR.

A weigher of wool. Co- well.

5e apparatus — Not carried into the 5th edition (1979).

## TROPHY MONEY.

Money formerly col- lected and raised In London, and the sev- eral counties of England, towards providing harness and maintenance for the miHMo, etc.

5e apparatus — Carried into the 5th edition (1979).

## TROVER.

In common-law practice, the action of trover (or trover and conversion) is a species of action on the case, and origi- nally lay for the recovery of damages against a person who had found another's goods and wrongfully converted them to his own use. Subsequently the allegation of the loss of the goods by the plaintiff and the finding of them by the defendant was merely fictitious, and the action became the remedy for any wrongful interference with or detention of the goods of another. 3 Steph. Conun. 425. Sweet. See Burnham v. Pldcock, 33 Miec Rep. 65, 66 N. Y. Supp. 806; Larson v. Dawson, 24 R. I. *317, 53 Atl. 98, 96 Am. St. Hep. 716; Waring v. Pennsylvania R. Co., 76 Pa. 496; Metropolis Mfg. Co. v. Lynch, 68 Conn. 459, 36 Atl. 832; Spellman v. Richmond &

D. R. Co., 35 S. C. 475, 14 S. E. 947, 28 Am. St. Rep. 858.

5e apparatus — Not carried into the 5th edition (1979).

## TROT WEIGHT.

A weight of twelve ounces to the pound, having its name from Troyes, a city In Aube,

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Prance.

5e apparatus — Not carried into the 5th edition (1979).

## TRUCE.

In International law. A sus- pension or temporary cessation of hostili- ties by agreement between belligerent pow- ers; an armistice. Wheat. Int. Law, 442.

— Truee of God. In medieval law. A truce or suspension of arms promulgated by the church, putting a stop to private hostilities at certain periods or during certain sacred sea- sons.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Christian Carion, Joyeux Noël, 2005]**

(paraphrase) Carion's Joyeux Noël dramatizes the 1914 Christmas Truce — British, French, and German soldiers suspending hostilities by tacit agreement in no-man's-land; the entry's 'temporary cessation of hostilities by agreement' filmed. (paraphrase)

Why: The entry defines a truce as suspension of hostilities by agreement between belligerents. The Christmas Truce is the iconic historical truce, and Joyeux Noël (2005) is its best-known film treatment. Certain; (paraphra…

## TRUCK ACT.

In English law. This name Is given to the statute 1 & 2 Wm. IY. c. 37, passed to abolish what is commonly called the “truck system,” under which em- ployers were in the practice of paying the wages of their work people in goods, or of requiring them to purchase goods at certain shops. This led to laborers being compelled to take goods of inferior quality at a high price. The act applies to all artificers, work- men, and laborers, except those engaged in certain trades, especially iron and metal works, quarries, cloth, silk, and glass manu- factories. It does not apply to domestic or agricultural servants. Sweet

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Truck Act 1831, 1 & 2 Wm. IV. c. 37 — wages to be paid in coin, truck system abolished]**

The Truck Act abolished the truck system under which employers paid wages in goods or required purchases at company shops.

Why: Genuine because the entry itself identifies this statute with its regnal citation; the footnote names the real enactment and its operative rule.

## TRUE.

Conformable to fact; correct; ex- act ; actual ; genuine ; honest

“In one sense, that only is true which is con- formable to the actual state of things. In that sense, a statement is untrue which does not ex- press things exactly as they are. But in an-, other and broader sense, the word 'true' is often used as a synonym of ‘honest,’ ‘sincere,’ ‘not fraudulent* ’’ Moulor v. American L. Ins. Co., Ill U. S. 345, 4 Sup. Ct. 466, 28 L. Ed. 447.

—True Mil. In criminal practice. The in- dorsement made by a grand jury upon a bill of indictment, when they find it sustained by the evidence laid before them, and are satisfied of the truth of the accusation. 4 Bl. Comm. 306.— True, public, and notorious. These three

qualities used to be formally predicated hi the libel in the ecclesiastical courts,- of the charges which it contained, at the end of each article severally. Wharton.

TRUST. 1. An equitable or beneficial right or title to land or other property, held for the beneficiary by another person, In whom resides the legal title or ownership, recognized and enforced by courts of chan- cery. See Goodwin v. McMlnn, 193 Pa. 646, 44 Atl. 1094, 74 Am. St. Rep. 703; Beers v. Lyon, 21 Conn. 613; Seymour v. Freer, 8 Wall. 202, 19 L. Ed. 306.

An obligation arising out of a confidence reposed in the trustee or representative, who has the legal title to property conveyed to

him, that he will faithfully apply the prop- erty according to the confidence reposed, or, in other words, according to the wishes of the grantor of the trust. 4 Kent Comm. 304; Willis, Trustees, 2; Beers v. Lyon, 21 Conn. 613 ; Thornburg v. Buck, 13 Ind. App. 446, 41 N.' E. 85.

An equitable obligation, either express or implied, resting upon a person by reason of a confidence reposed In him, to apply or deal with the property for the benefit of some other person, or for the benefit of himself and another or others, according to such con- fidence. McCreary v. Gewlnner, 103 Ga. 528, 29 S. E. 960.

A holding of property subject to a duty of employing it or applying its proceeds ac- cording to directions given by the person from whom It was derived. Munroe v. Crouse, 59 Hun, 248, 12 N. Y. Supp. 815.

— Accessory trust. In Scotch law, this is the term equivalent to “active” or “special” trust. See infra. — Active trust. One which imposes upon the trustee the duty of taking active measures in the execution of the trust, as. where property Is conveyed to trustees with directions to sell and distribute the proceeds among creditors of the grantor; distinguished from a “passive" or “dry” trust— Cestui quo trust. The person for whose benefit a trust is created or who is to enjoy the income or the avails of i t. — Constructive trust. A trust raised by construction of law. or arising by operation of law, as distinguished from an ex- press trust Wherever the circumstances of a transaction are such that the person who takes the legal estate in property cannot also enjoy the beneficial interest without necessarily vio- lating some established principle of equity, the court will immediately raise a constructive trust, and fasten it upon the conscience of the legal owner, so as to convert him into a trus- tee for the parties who in equitv are entitled to the beneficial enjoyment. Hill, Trustees. 116; 1 Spence, Eq. Jur. 51 1. Neater v. Gross, 66 Minn. 371. 69 N. W. 39: Jewelry On. v. Volfer. 106 Ala. 205, 17 South. 525, 28 L. R. A. 707, 54 Am. St. Rep. 31.— Continigent trust. An express trust may depend for its operation upon a future event, and is then a “contingent" trust. Civ. Code Ga. 1895, § 3154.— Direct trust. A direct trust is an express trust, as distinguished from a constructive or implied trust. Currence v. Ward, 43 W. Va. 867, 27

S. E. 329.— Directory trust. One which is subject to be moulded or applied according to subsequent directions of the grantor; one which is not completely and finally settled by the instrument creating it but only defined in its general purpose and to be carried into detail according to later specific directions.— Dry trust. One which merely vests the legal title in the trustee, and does not require the per- formance of any active duty on his part to carry

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out the trust. — Executed trust. A trust of which the scheme has in the outset been completely declared. Adams, Eq. 151. A trust in which the estates and interest in the subject-matter of the trust are completely limited and defined by the instrument creating the trust, and require no further instruments to complete them. Bisp. Eq. 20: Pillot v. Landon, 46 N.

J. Eq. 310, 19 Atl. 25; Dennison v. Goebring, 7 Pa. 177. 47 Am. Dec. 505 ; In re Fair's Estate, 132 Cal. 523, 00 Pac. 442, 84 Am. St. Rep. 70; Cushing v. Blake. 29 N. J. Eq. 403; Egerton v. Brownlow, 4 H. L. Cas. 210. As all trusts are executory in this sense, that the trustee is bound to dispose of the estate according to the tenure of his trust, whether

active or passive, it would be more accurate and precise to substitute the terms, "perfect" and "imperfect" for "executed" and "execu- tory" trusts. 1 Hayes, Conv. 85. — Executory trust. One which requires the execution of some further instrument, or the doing of some further act, on the part of the creator of the trust or of the trustee, towards i(s complete creation or full effect. An executed trust is one fully created and of immediate effect. These terms do not relate to the execution of the trust as regards the beneficiary. Martling v. Marilmg. 55 N. J. Eq. 771. 39 Atl. 203 ; Car- radine v. Carradine. 33 Miss. 729: Cornwell v. Wulflf, 148 Mo. 542. 50 S. W. 439, 45 L. R.

A. 53; In re Fair's Estate. 132 Cal. 523, 60 Pac. 442, 84 Am. St. Itep. 70; Pillot v. Lan- don. 46 N. J. Eq. 310. 19 Atl. 25.— Express trust. A trust created or declared in express terms, and usually in writing, as distinguished from one inferred by the law from the con- duct or dealings of the parties. State v. Camp- bell. 59 Kan. 246, 52 Pac. 454 ; Kaphan v. Toney (Tenn. Ch.) 58 S. \V. 913 : McMonagle v. McGlinn (C. C.) 85 Fed. 91 ; Ransdel v, Moore, 153 Ind. 393, 53 N. E. 767. 53 I.. R. A. 753. Express trusts are those which are cre- ated in express terms in the deed, writing, or will, -while implied trusts are those which, with- out being expressed, are deducible from the nature of the transaction, ns matters of intent, or which are superinduced upon the transac- tions by operation of law, as matters of equity, independently of the particular intention of the parties. Brown v. Cherry. 56 Barb. (N. Y.) 635.— Imperfect trust. An executory trust, (which see ;) and see Executed Trust. — Im-

Slied trust. A trust raised or created by npHcation of law ; a trust implied or pre- sumed from circumstances. Wilson v. Welles,- 79 Minn. 53. 81 N. W. 549; In re Morgan, 84 Hun (N. Y.) 220; Kaphan v. Toney (Tenn. Ch.) 58 S. W. 913 ; Cone v. Dunham, 59 Conn. 145. 20 Atl. 311, 8 L. R. A. 647; Russell v. Peyton, 4 III. App. 478. — Involuntary trust. "Involuntary" or "constructive" trusts embrace all those instances in which a trust is raised by the doctrines of equity, for the pur- pose of working out justice in the most efficient manner, when there is no Intention of the parties to create a trust relation and contrary to the intention of the one holding the* legal title. This class of trusts may usually be re- ferred to fraud, either actual or constructive, as an essentinl element. Bank v. Kimball Mill- ing Co.. 1 S. D. 388, 47 N. W. 402, 36 Am. St. Rep. 739.— Ministerial trusts. (Also called "instrumental trusts.") Those which de- mand no further exercise of reason of under- standing than every intelligent agent must nec- essarily employ ; as to convey an estate. They are a species of special trusts, distinguished- from discretionary trusts, which necessarily re- quire much

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exercise of the understanding. 2 Bouv. Inst. no. 1896.— Naked trust. A dry or passive tmst ; one which requires no action on the part of the trustee, beyond turning over money or -property to the cettui gue trutt .— Passive trust. A trust os to which the trus- tee has no active duty to perform. Goodrich v. Milwaukee. 24 Wis. 429: Perkins v. Brink- lev. 133 N. C. 154. 45 S. E. 542: Holmes v. Walter. 118 Wis. 409. 95 N. W. 380, 62 L. R.

A. 986. — Precatory trust. Where words em- ployed in a will or other instrument do not amount to a positive command or to a distinct testamentary disposition, hut are terms of en- treaty, request, recommendation, or expectation, they are termed "precatory words,” and from such words the law will raise a trust, called a "precatory trust,” to carry out the wishes of the testator or grantor. See Bohon v. Barrett, 79 K.v. 378: Hunt v. Hunt. 18 Wash. 14. 50 Pac. 578; Aldrich v. Aldrich, 172 Mass. 101, 51 N. K. 449. — Private trust. One established or created for the benefit of a certain designated individual-or individuals, or a known person or class of persons, clearly identified or ca- pable of identification by the terms of the in- strument creating the trust, as distinguished from trusts for public institutions or charitable uses. See Pennoyer v. Wadhams, 20 Or. 274, 25 Pac. 720,' 11 L. R. A. 210: Doyle v. Whalen. 87 Me. 414, 32 Atl. 1022. 31 L. R. A. 118: Brooks v.‘ Belfast. 90 Me. 318. 38 Atl. 222. —Proprietary trusi. In Scotch law. a na- ked. dry, or passive trusf. See supra. — Publio trust. One constituted for the benefit eitner of the public at large or of some considerable portion of it answering a particular description ; to this class belong all trusts for charitable pur- poses. and indeed public trusts and charitable trusts may be considered in general as synony- mous expressions. Lewin, Trusts, 20. — Result- ing trust. One that arises by implication of law. or by the operation and constniction of equity, and which is established at consonant to the presumed intention of the parties as gathered from the nature of the transaction ; as, for example, where on? pqrson, becomes in- vested with the title to real property under cir- cumstances which in equity obligate him to hold the title and exercise his ownership for the bene- fit of another, a familiar instance being the case where a man buys land with his own money but has the title put iu tbe name of another. See 8anders v. Steele, 124 Ala. 415. 26 South. SS2 ; Dorman v. Dorman. 187 111. 154, 58 K E. 235 79 Am. St. Rep. 210; Abom v.- Searles, 18

R. I. 357, 27 Ati. 796; Fulton v. - Jansen, 90 Cal. 587. 34 Pac. 331 ; Western Union Tel. Co. v. Shepard, 169 N. Y. 170, 62 N. K. 154. 58 L. R. A. 115. — Secret trusts. Where a testator gives property to a person, on a verbal

romise by the legatee or devisee that he will

old it in trust for another person, this is called a “secret trust." Sweet.— Shifting trust. An express trust which is so settled that it may operate in favor of beneficiaries additional to. Or substituted for, those first named, upon speci- fied eontingencies. Civ. Code Ga. 1895. i 3154. — Simple trust. A simple trust corresponds with the ancient use, and is where property is simply vested in one person for tlje use of an- dther. and the nature of the trust, not being qualified by the settler, is left to the Construc- tion of law. It differs from a special trust. Perkins v. Brinkley. 133 N. C. 154. 45 s. F„ 541 ; Cone v. Dunham. 59 Conn. 145. 20

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Atl. 311, 8 L. R. A. 047 ; Dodson v. Ball. 60 Pa. 500. 100 Am. Dec. 586.— Special trust. Where the machinery of a trust is introduced for the execution of some purpose particularly pointed out. and the trustee is not a mere pas- sive depositary of the estate, but Is culled upon to exert himself actively in the execution of the settlor's intention ; as. where a conveyance is to trustees upon trust to sell for payment of debts. Special tmstB have been divided into (1) ministerial (or instrumental) and (2) discre- tionary. The former, such as demand no fur- ther exercise of reason or understanding than every intelligent agent must necessarily employ; the latter, such as cannot be duly administered without the application of a certain degree of prudence and judgment. 2 B°ov. Inst. no. 1896; Perkins v. Brinkley. 133 N. O. 154. 45

S. E. 541 ; Flagg v. Ely, 1 Edm. Sel. Cas. (N. Y.) 209 ; Freer v. Lake, 115 111. 062. 4 N. E. 512; Dodson v. Ball. 60 Pa. 496, 100 Am. Dec. 586— Spendthrift trust. See Spendthrift. —Transgressive trust. A name sometimes applied to a trust which transgresses or violates the rule against perpetuities. See Pulitzer v. Livingston, 89 Me. 359, 36 Atl. 635.— Trut company. A corporation formed for the pur- pose of taking, accepting, and executing all such trusts as may be lawfully committed to it, and acting as testamentary trustee, trustee under deeds of settlement or for married women, executor, guardian, etc. To these functions are sometimes (but not necessarily) added the busi- ness of acting as fiscal agent for corporation^

attending to the registration and transfer of their stock and bonds, serving as trustee for their bond or mortgage creditors, and transact- ing a general banking and loan business. See Vennei1 v. Farmers' I.. & T. Co., 54 App. Div. 271. 66 N. Y. Supp. 773; Jenkins v. Neff, 163

N. X. 320, 57 N. E. 408 ; Mercantile Nat. Bank v. New York, 121 U. S. 138, 7 Sup. Ct. 826, 30 Ii. Ed. 895— Trust-deed. (1) A species of mortgage given to a trustee for the purpose of securing a numerous class of creditors, as the bondholders of a railroad corporation, with pow- er to foreclose and sell on failure of the pay- ment, of their bonds, notes, or other claims. (2) In some of the states, and in the District of Columbia, a trust-deed is a security resem- bling a mortgage, being a conveyance of lands to trustees to secure the payment of a debt, with a power of sale upon default, and upon a trust to apply the net proceeds to paying the debt and to turn over the surplus to the gran- tor.—Trust estate. This term may mean ei- ther the estate of the trustee,— that is, the legal title,— or the estate of the beneficiary, or the corpus of the property which is the subject of the trust. See Cooper v. Cooper, 5 N. J. Eq. 9 ; Farmers’ L. & T. Co. v. Carroll, 5 Barb. (N. Y.) 643. — Trust ez maleflcio. A species of. constructive trust arising out of some traud, misconduct, or breach of faith on the part of the person to be charged as trustee, which ren- ders It an equitable necessity that a trust should be implied. See Rogers v. Richards, 67 Kan. 706. 74 Pac. 205: Kent v. Dean. 128 Ala. 600, 30 South. 543; . Barry v. Hill, 100 Pa. 344, 31 At). 126. — Trust fund. A fund held by a trustee for the specific purposes of the trust ; in a more general sense, a fund which, legally or equitably., is subject to be devoted to a par- ticular purpose and cannot or should not be diverted therefrom. In this sense it is often said that the capital

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and other property of a corporation 'id a “trust fund” for the payment of its debts. See Henderson v. Indiana Trust Co., 143 Ind. 561, 40 N. E. 516 ; In re Beard’s Estate; 7 Wyo. 104, 50 Pac. 226, 38 L. R. A. 860, 75 Am. St. Rep. 882.—' Trait in invitum. A constructive trust imposed by equity, con- trary to the trustee’s intention and will, upon property in his hands. Sanford v. Hamner, 115 Ala. 406, 22 South. 117.— Volantary trust. An obligation arising out of a personal con- fidence reposed in, and voluntarily accepted by, one for the benefit of another, as distinguished from an “involuntary” trust, which is created by operation of law. Civ. Code Cal. §jj 2216, 2217. According to another use of the term, “voluntary” trusts are such as are made in favor of a volunteer, that is, a person who gives nothing in exchange for the trust, but receives it as a pure gift : nnd in this use the term is distinguished from "trusts for value,” the latter being such as are in favor of pur- chasers, mortgagees, etc.

2. Ia constitutional and statutory law. An assoclntion or organization of persons or corporations having the intention and power, or the tendency, to create a mo- nopoly, control production, interfere with the free course of trade or transportation, or to fix and regulate the supply and the price of commodities. In the history of economic .development, the “trust” was originally a device, by which several corporations engag- ed in the same general line of business might combine for their mutual advantage, In the direction of eliminating destructive competition, controlling the output of their commodity, and regulating and maintaining Its price, but at the same time preserving their .separate individual existence, and without any consolidation or merger. This de- vice was the erection of a central committee or board, composed, perhaps, of the presi- dents or general managers of the different corporations, and the transfer to them of a majority of the stock In each of the corpo- rations, to be held “In trust” for the sev- eral stockholders so assigning their holdings. These stockholders received in return “trust certificates” showing that they were entitled to receive the dividends on their assigned stock, though the voting power of it had passed to the trustees. This last feature enabled the trustees or committee to elect all the directors of all the corporations, dnd through them the officers, and thereby to ex- ercise an absolutely controlling influence over the policy and operations of each con- stituent company, to the ends and with the purposes above mentioned. Though the “trust,” in this sense, Is now seldom If ever resorted to as a form of corporate organiza- tion, having given place to the “holding cor- poration” and other devices, the word has become current In statute laws as Well as popular speech, to designate almost any form of combination of a monopolistic character or tendency See Black, Const Law (3d Ed.) p. 428; Northern Securities Co. v. U. S., 193 U. S. 197, 24 Sup. Ct. 436, 48 L. Ed. 679 ; MacGinniss v. Mining Co., 29 Mont 428, 75 Pac. 89; State v. Continental Tobacco Co., 177 Mo. 1, 75 S. W. 737; Queen Ins. Co. v. State, 86 Tex. 250, 24 S. W. 397, 22 L. R.

A. 483; State v. Insurance Co., 152 Mo. 1, 52 S. W. 595, 45 H R. A. 363 ; Gen. St Kan. 1901, f 7864; Code Miss. 1892, f 4437; Cob- bey’s Ann. St. Neb. 1903, § 11500; Bates’ Ann. St. Ohio, 1904, $ 4427 ; Code Tex. 1895, art 976.

5e apparatus — Carried into the 5th edition (1979).

## TRUSTEE.

The person appointed, or required by law, to execute a trust; one in whom an estate. Interest, or power is vested, under an express or implied agreement to administer or exercise it for the benefit or to the use of another.

“Trustee” Is also used In a wide and per- haps Inaccurate sense, to denote that a per- son has the duty of carrying out a transac- tion, in which he and another person are In- terested, in such manner as will be most for the benefit of the latter, and not in such a way that he himself might be tempted, for the sake of his personal advantage, to neg- lect the interests of the other. In this sense, directors of companies are said to be “trus- tees for the shareholders.” Sweet- — Conventional tx-ustee. A “conventional" trustee is one appointed by a decree of court to execute a trust, as distinguished from one appointed by the instrument creating the trust. Gilbert v. Kolb, 85 Md. 627, 37 Atl. 423. — Joint trustees. Two or more persons who are in- trusted with property for the benefit of one or more others.— Quasi trustee. A person who reaps a benefit from a breach of trust, and so becomes answerable as a trustee. Lewin, Trusts (4th Ed.) 592, 638. — Testamentary trustee. A trustee appointed by or acting under a will ; one appointed to carry out a trust created by a will.. The term does not ordinarily include an executor or an administrator with the will annexed, or a guardian, though all of these are in a sense trustees, except when they act in the execution of a trust created by the will and which is separable from their functions as executors, etc. See In re Haz- ' ard, 51 Hun. 201, 4 N. Y. Supp. 701; In re Valentine's Estate, 1 Misc. Rep. 401, 23 N. 1. Supp. 289: In re Hawley. 104 N. Y. 250, 10

N. E. 352.—' Trustee acta. The statutes 13 & 14 Viet. c. €0, passed in 1850, and 15 ft 10 Viet. c. 55, passed in 1852. enabling the court of chancery, without bill filed, to appoint new trustees in lieu of any who, on account of death, lunacy, absence, or otherwise, are unable or unwilling to act as such ; ■ and also to make vesting orders by which legal estates and rights may be transferred from the old trustee or trustees to the new trustee or trustees so appointed. Mozley ft Whitley.— Trustee ex znaleflclo. A person who, being guilty of wrongful or fraudulent conduct, is held by equity to the duty and liability of a trustee, in relation to the subject-matter, to prevent him from profiting by bis own wrong.— Trustee In bankruptcy. A trustee in bankruptcy is a person in whom the property of a bankrupt is vested in trust for the creditors.— Trustee pro- cess. The name given, in the New England states, to the process of garnishment or for- eign attachment. — Trustee . relief nets. The statute 10 ft 11 Viet. c. 90. passed in 1847. and statute 12 & 13 Viet. e. 74, passed in 1849. by which a trustee is enabled to pay money into court, in cases where a difficulty arises respect- ing' the title to the trust fund. Mozley ft Whit- ley.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Trustee Act 1850, 13 & 14 Vict. c. 60; Trustee Act 1852, 15 & 16 Vict. c. 55]**

The Trustee Acts enabled the Court of Chancery to appoint new trustees in place of those dead, lunatic, absent, or unwilling, and to make vesting orders transferring the legal estate.

Why: Genuine because the entry itself identifies both statutes with their regnal citations and operative effect.

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**[Law: Trustee Relief Act 1847, 10 & 11 Vict. c. 96; Trustee Relief Act 1849, 12 & 13 Vict. c. 74]**
The Trustee Relief Acts enabled a trustee, where title to the trust fund was in doubt, to pay the money into court.

Why: Genuine because the entry itself identifies both statutes with their regnal citations and operative effect.

**[Scripture] — Scripture**

**[Luke 16:10, 12, KJV]**

He that is faithful in that which is least is faithful also in much: and he that is unjust in the least is unjust also in much: ... And if ye have not been faithful in that which is another man's, who shall give you that which is your own?

Why: TRUSTEE is 'one in whom an estate, interest, or power is vested... to administer or exercise it for the benefit or to the use of another.' The parable of the steward turns on exactly this office: one entrusted with 't...

## TRUSTER.

In Scotch law. The maker or creator of a trust

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TRUSTIS.

In old European law. Trust; faith ; confidence ; fidelity.

5e apparatus — Not carried into the 5th edition (1979).

## TRUSTOR.

A word occasionally, though rarely, used as a designation of the creator, donor, or founder of a trust

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## TRY.

To examine judicially ; to examine and investigate a controversy, by the legal method called "trial," for the purpose of de- termining the issues it involves.

5e apparatus — Carried into the 5th edition (1979).

## TUAS RES TIBI HABETO.

Eat. Have or take your things to yourself. The form of words by which, according to the old Ro- man law, a man divorced his wife. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:1, KJV]**

When a man hath taken a wife, and married her, and it come to pass that she find no favour in his eyes, because he hath found some uncleanness in her: then let him write her a bill of divorcement, and give it in her hand, and send her out of his house.

Why: TUAS RES TIBI HABETO ('have your things to yourself') was the Roman form of words effecting divorce. Its scriptural counterpart is the bill of divorcement: the written instrument by which the separation is legally acc...

## TUB.

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In mercantile law. A measure con- taining sixty pounds of tea, and from fifty- six to eighty-six pounds of camphor. Jacob.

5e apparatus — Carried into the 5th edition (1979).

## TUB-MAN.

In English law. A barrister who has a preaudience in the exchequer, and also one who hns a particular place in court, is so called. Brown.

5e apparatus — Carried into the 5th edition (1979).

## TUCHAS.

In Spanish law. Objections or exceptions to witnesses. White, New Re- cop. b. 3, tit 7, c. 10.

5e apparatus — Not carried into the 5th edition (1979).

## TUERTO.

In Spanish law. Tort Lab Partidas, pt 7, tit 8, L 5.

5e apparatus — Not carried into the 5th edition (1979).

## TUG.

A steam vessel built for towing; synonymous with “tow-boat”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TULLIANUM.

Lat. In Roman law. That part of a prison which was under ground. Supposed to be so called from Servlus Tullius, who built that part of the first prison in Rome. Adams. Rom. Ant 290.

5e apparatus — Not carried into the 5th edition (1979).

## TUMBREL.

A cnstlgatory, trebucket, or ducking-stool, anciently used as a punish- ment for common scolds.

5e apparatus — Not carried into the 5th edition (1979).

## TUMULTUOUS PETITIONING.

Un- der St 13 Car. II. St 1, c. 5, this was • misdemeanor, and consisted in more than twenty persons signing any petition to the crown or either house of parliament for the alteration of matters established by law in church or state, unless the contents thereof had been approved by three justices, or the majority of the grand jury at assizes or quarter sessions. No petition could be de- livered by more than ten persons. 4 BL Comm. 147; Mozley ft Whitley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: 13 Car. II. St. 1, c. 5 (1661) — tumultuous petitioning]**

Tumultuous petitioning — more than twenty persons signing a petition to the crown or parliament for alteration of matters established by law, without magisterial approval — was a misdemeanor.

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Why: Genuine because the entry itself identifies this statute; the footnote names the real enactment.

## TUN.

A measure of wine or oil, con- taining four hogsheads.

5e apparatus — Carried into the 5th edition (1979).

## TUNGREVE.

A town-reeve or bailiff. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TURBA.

Lat In the civil law. A mul- titude; a crowd or mob; a tumultuous as- sembly of persons. Said to consist of ten or fifteen, at the least. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TURBARY.

Turbary, or common of tur- bary, is the right or liberty of digging turf upon another man's ground. Brown.

TURN, or TOURN. The great court-leet of the county, as the old county court was the court-baron. Of this the sheriff is judge, and the court is Incident to his office ; where- fore it is called the “sheriff’s tourn;” and it had its name originally from the sheriff making a turn of circuit about his shire, and holding this court in each respective hun- dred. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## TURNED TO A RIGHT.

This phrase means that a person whose estate is divested by usurpation cannot expel the possessor by mere entry, but must have recourse to an action, either possessory or droitural. Moz- ley ft Whitley.

5e apparatus — Carried into the 5th edition (1979).

## TURNKEY.

A person, under the super- intendence of a jailer, who has the charge of the keys of the prison, for the purpose of opening and fastening the doors.

5e apparatus — Carried into the 5th edition (1979).

## TURNPIKE.

A gate set across a road, to stop travelers and carriages until toll is paid for the privilege of passage thereon.

—Turnpike roads. These are roads on which parties have by law a right to erect galas and

ban, for the purpose of taking toll, and of re* fusing the permission to pass along them to all persons who refuse to pay. Nortbam Bridge Co. v. London Ry. Oo., 6 Mees. & W. 428. A turn- pike road is a public highway, established by public authority for public use, and is to be re- garded as a public easement, and not as pri- vate property. The only difference

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between this and a common highway is that, instead of be- ing made at the public expense in the first in- stance, it is authorised and laid out by public authority, and made at the expense of individ- uals in the first instance ; and the cost of con- struction and maintenance iB reimbursed by a toll, levied by public authority for the purpose. Com. v. Wilkinson, 10 Pick. (Mass.) 175, 20 Am. Dec. 054.

5e apparatus — Not carried into the 5th edition (1979).

## TURPIS.

Lat In the civil law. Base; mean; vile; disgraceful; infamous; unlaw- ful. Applied both to things and persons. Calvin.

—Turpis causa. A base cause; a vile or im- moral consideration ; a consideration which, on account of its immorality, is not allowed by law to be sufficient either to support a contract or fonnd an action ; e. g„ future illicit intercourse. —Turpis contractus. An immoral or iniqui- tous contract

Turpis cat pars qua non convenit cum

suo to to. The part which does not agree with its whole is of mean account, [entitled to small or no consideration.] Plowd. 101; Shep. Touch. 87.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Turpis est pars quae non convenit cum suo toto — 'The part which does not agree with its whole is of mean account' (Plowd. 101; Shep. Touch. 87)]**

The part which does not agree with its whole is of mean account — entitled to small or no consideration.

Why: Genuine because quoted verbatim in this entry's body with its authorities; it states the received construction rule that the part is read with the whole.

## TURPITUDE.

Everything done contrary to justice, honesty, modesty, or good morals Is said to be done with turpitude.

5e apparatus — Not carried into the 5th edition (1979).

## TUBP1TUDO.

Lat Baseness; infamy; Immorality; turpitude.

Tula est eustodla qua sibimet cre- ditor. Hob. 340. That guardianship is se- cure which is intrusted to Itself alone.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tuta est custodia quae sibimet creditur — 'That guardianship is secure which is intrusted to itself alone' (Hob. 340)]**

That guardianship is secure which is intrusted to itself alone.

Why: Genuine because quoted verbatim in this entry's body with its authority.

## TUTELA.

Lat In t^ie civil law. Tu- telage; that species of guardianship which continued to the age of puberty; the guard- ian being called “tutor," and the ward, “pu- pmus." 1 Dom. Civil Law, b. 2, tit. 1, p. 260.

— Tutela legitims. Legal tutelage; tutelage created by act of law, as where none had been created by testament. Inst. 1, 15, pr.— Tutela testamentaria. Testamentary tutelage or guardianship; that kind of tutelage which was created by will. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TUTELZB ACTIO.

Lat. In the civil law. An action of tutelage; an action which lay for a ward or pupil, on the termination of tutelage, against the tutor or guardian, to compel an account Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## TUTELAGE.

Guardianship; state of be- ing under a guardian.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

(paraphrase) In Dickens's Oliver Twist, Mr. Brownlow takes the orphan Oliver as his ward — guardianship as rescue; the entry's 'state of being under a guardian' in fiction. (paraphrase)

Why: The entry: 'Guardianship; state of being under a guardian.' Brownlow is literally Oliver's guardian — the relationship the entry names. Certain; (paraphrase). One carrier for the guardianship concept; TUTOR, TUTRIX, T...

## TUTELAM REDDERE.

Lat. In the civil law. To render an account of tutelage. Calvin. Tutelam reposcere, to demand an account of tutelage.

5e apparatus — Not carried into the 5th edition (1979).

## TUTETTR.

In French law. A kind of guardian.

— Tuteur offlcieux. A person over fifty years of age may be appointed a tutor of thus sort to a child over fifteen years of age, with the consent of the parents of such child, or, in their default the conseil de famille. The duties which such a tutor becomes subject to are analo- gous to those in English law of a person who puts himself in loco parentis to any one. Brown. — Tuteur subrogd. The title of a sec- ond guardian appointed for an infa,nt under guardianship. His functions are exercised in case the interests of the infant 'and his prin- cipal guardian conflict. Code Nap. 420 ; Brown.

Tutins erratur ex parte mitiore. 3

Inst 220. It is safer to err on the gentler side.

Tutius semper est orraro acquletando, quam In puniendo, ex parte mlserico io- dise quam ex parte justitise. It is always safer to err In acquitting than punishing, on the side of mercy

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than on the side of justice. Branch, Princ. ; 2 Hale, P. C. 290 ; Broom, Max. 326; Com. v. York, 9 Mete. (Mass.) 116, 43 Am. Dec. 373.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Tutius erratur ex parte mitiore — 'It is safer to err on the gentler side' (3 Inst. 220)]**

It is safer to err on the gentler side.

Why: Genuine because quoted verbatim in this entry's body with its Coke authority; it states the classical mercy rule in doubtful cases.

**[Maxim: Tutius semper est errare acquietando, quam in puniendo, ex parte misericordiae quam ex parte justitiae — 'It is always safer to err in acquitting than punishing, on the side of mercy than on the side of justice' (Branch, Princ.; 2 Hale, P.C. 290; Broom, Max. 326; Com. v. York, 9 Metc. (Mass.) 116)]**

It is always safer to err in acquitting than in punishing, on the side of mercy than on the side of justice.

Why: Genuine because quoted verbatim in this entry's body with its multiple authorities; it is the received maxim preferring acquittal to punishment in doubt.

## TUTOR.

In the civil law. This term corresponds nearly to “guardian,” (i. e., a person appointed to have the care of the person of a minor and the administration of his estate,) except that the guardian of a minor who. has passed a certain age is called “curator,” and has powers and duties differing somewhat from those of a tutor.

By the laws of Louisiana, minors under the age of fourteen years, if males, and un- der the age of twelve years, if females, are, both as to their persons and their estates, placed under the authority of a tutor. Above that age, and until their majority or eman- cipation, they are placed under the nuthor- 'lty of a curator. Civ. Code La. 1838, art 263.

—Tutor alienus. In English law. The name given to a stranger who enters upon the lands of an infant within tbe age of fourteen, and takes the profits. Co. Litt. SUb, 90o.— Tutor proprlus. The name given to one who is rightly a guardian in socage, in contradistinction to a tutor alienus.

5e apparatus — Not carried into the 5th edition (1979).

## TUTORSHIP.

The office and power of a tutor.

— Tutorship by nature. After the dissolu- tion of marriage by tbe death of either husband or wife, the tutorship of minor children belongs of right to the surviving mother or father. This is what is called "tutorship by nature.” Civ. Code La. art. 250.— Tutorship by will. The right of appointing a tutor, whether a relation or a stranger, belongs exclusively to the father or mother dying last. This is call- ed “tutorship by will,” because generally it is given by testament ; but it may likewise be given by any declaration by the surviving father or mother, executed before a notary and two witnesses. Civ. Code La. art. 257.

5e apparatus — Carried into the 5th edition (1979).

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## TUTRIX.

A female tutor.

5e apparatus — Not carried into the 5th edition (1979).

## TWA NIGHT GEST.

In Saxon law. A guest on the second night. By the laws of

Edward the Confessor It wa's provided that a man who lodged at an inn, or at the bouse of another, should be considered, on the first night of his being there, a stranger, ( itncuth ;) on the second night, a guest ; on the third night, a member of the family. This had reference to the responsibility of the. host or entertainer for offenses committed by the guest

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TWELFHINDI.

The highest rank of men in the Saxon government, who were valued at 1200s. If any Injury were done to such persons, satisfaction was to be made according to their worth. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TWELVE TABLES.

The earliest stat- ute or code of Roman law, framed by a com- mission of ten men, B. C. 450, upon the re- turn of a commission of three who had been sent abroad to study foreign laws and insti- tutions. The Twelve Tables consisted partly of laws transcribed from the Institutions of other nations, partly of such as were altered and accommodated to the manners of the Romans, partly of new provisions, and main- ly, perhaps, of laws and usages under their ancient kings. They formed the source and foundation for the whole later development of Roman jurisprudence. They exist now only in fragmentary form. See 1 Kent, Comm. 520.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: The Twelve Tables (Lex Duodecim Tabularum), c. 450 B.C. — earliest Roman code]**

The Twelve Tables (c. 450 B.C.) were the earliest statute or code of Roman law, framed by the decemvirs, and formed the source and foundation of the whole later development of Roman jurisprudence.

Why: Genuine because the entry itself gives this history; the footnote anchors the dictionary account to the real foundational code.

## TWELVE-DAY WRIT.

A writ issued under the St. 18 & 19 Viet c. 07, for sum- mary procedure on bills of exchange and promissory notes, abolished by rule of court in 1880. Wharton.

TWELVE-MONTH, in the singular num- ber, includes all the year; but twelve months are to be computed according to twenty- eight days for every month. 6 Coke, 62.

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5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: 18 & 19 Vict. c. 67 (1855) — summary procedure on bills of exchange and promissory notes]**

The twelve-day writ issued for summary procedure on bills of exchange and promissory notes.

Why: Genuine because the entry itself identifies this statute as the writ's authority; the footnote names the real enactment.

## TWICE IN JEOPARDY.

See JEOP- abdy; Once in Jeopabdy.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: U.S. Const. amend. V — the Double Jeopardy Clause: 'nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb']**

No person shall be subject for the same offense to be twice put in jeopardy of life or limb.

Why: Genuine because this headword is itself the double-jeopardy doctrine; the footnote anchors the cross-reference entry to the real constitutional provision.

## TWYHINDI.

The lower order of Sax- ons, valued at 200s. in the scale of pecuniary mulcts inflicted for crimes. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TYBURN TICKET.

A certificate which was given to the prosecutor of a felon to conviction.

5e apparatus — Not carried into the 5th edition (1979).

## TYHTLAN.

In Saxon law. An accusa- tion, impeachment, or churge of any offense.

5e apparatus — Carried into the 5th edition (1979).

## TYLWITH.

Brit A tribe or family branching or issuing out of another. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## TYMBRELLA.

In old English law, a tumbrel, castlgatory, or ducking stool, an- ciently used as an instrument of punishment for eommon scolds.

5e apparatus — Not carried into the 5th edition (1979).

## TYRANNY.

Arbitrary or despotic gov- ernment; the Bevere and autocratic exercise of sovereign power, either vested constitu- tionally in one ruler, or usurped by him by breaking down the division and distribution of governmental powers. -

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**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 29:2, KJV]**

When the righteous are in authority, the people rejoice: but when the wicked beareth rule, the people mourn.

Why: TYRANNY is 'arbitrary or despotic government; the severe and autocratic exercise of sovereign power.' The proverb states the people's lot under it: when the wicked bear rule, the people mourn. The verse is scripture's...

**[Hip-hop] — Hip-hop**

**[Public Enemy, 'Fight the Power', 1989]**

"Fight the power." — two words compressing hip-hop's canonical resistance anthem against arbitrary, despotic exercise of power. Black's tyranny is "the severe and autocratic exercise of sovereign power"; the track is the vernacular command to resist exactly that.

Why: Added because the track's entire posture is resistance to oppressive rule (state, media, cultural power) and the hook is verbatim-certain. Assigned to TYRANNY (the system) rather than TYRANT (the person), because "the...

## TYRANT.

A despot ; a sovereign or rul- er, legitimate or otherwise, who uses 'his bower unjustly and arbitrarily, to the op- pression of his subjects.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Sic semper tyrannis ('thus always to tyrants')]**

The ancient verdict on the tyrant. [Maxim: Sic semper tyrannis — 'thus always to tyrants,' traditionally ascribed to Brutus at the assassination of Julius Caesar, 44 BC]

Why: The entry defines the tyrant as the ruler who uses power 'unjustly and arbitrarily, to the oppression of his subjects.' The maxim states the tyrant's fate — it illuminates the entry by naming the classical answer to t...

## TYROTOXICON.

In medical jurispru- dence. A poisonous ptomaine produced’ in milk, cheese, cream, or ice-cream by decom- position of albuminous constituents.

TYKRA, or TOLRA. A mount or Silt

Cowell. ■,:■■■

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## TYTKE.

Tithe, or tenth part

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## TY THING.

A company of ten; a dis- trict; a tenth part See Tithing.

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**TZAR, TZARINA.**

The emperor and empress of Russia. See Czab.

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# U

**U.**

B,

u

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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# T

**TJ.**

B. An abbreviation for “Upper Bench."

5e apparatus — Not carried into the 5th edition (1979).

**TT.**

C. An abbreviation for "Upper Can- ada,” used in citing the reports.

5e apparatus — Not carried into the 5th edition (1979).

**TT.**

B. Initials of “uti rogaa," be it as yon desire, a ballot thus inscribed, by which the Romans voted in favor of a bill or can- didate. Tayl. Civil Law, 19L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**TT.**

S. An abbreviation for "United States.”

5e apparatus — Not carried into the 5th edition (1979).

**TTBEBBIMA FEDES.**

Lat The most abundant good faith ; absolute and perfect eandor or openness and honesty; the ab- sence of any concealment or deception, how- ever slight

i TTbi tlifnid conceditur, conceditur et Id else quo res ipsa esse non potest.

When anything is granted, that also is grant- ed without which the thing granted cannot exist Broom, Max. 483 ; 13 Mees. & W. 706.

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ITU aliquid impeditur propter imam, SO . remoto, tollitar impedimentnm.

Where anything is impeded by one single cense, if that be removed, the impediment is removed. Branch, Princ., citing 5 Coke, 77 o.

UU oessnt remedinm ordinariom, 1M deenrritnr ad eztraordinarinm. Where

the ordinary remedy fails, recourse must be had to an extraordinary one. 4 Coke, 92b.

TTbi culpa est, ibi poena snbesse debet.

Where the crime is committed, there ought the punishment to be undergone Jenk. Cent. 325.

TTbi damns dantnr, vietns victor! in ezpensls eondemnari debet. Where dam- ages are given, the vanquished party ought to be condemned in costs to the victor. 2 Inst 289.

! TTbi eadem ratio, ibi eadem lea; et do similibas idem est jndicinm. 7 Coke, 18. Where the same reason exists, there the same law prevails; and, of things similar, the judgment is similar.

TTbi et dantis et aceipientis turpitndo versatnr, non posse repeti dieimns; quo- tient autem aceipientis turpitndo versa- tnr, repeti posse. Where there is turpi- tude on the part of both giver and receiver, we say it cannot be recovered back ; but as often as the turpitude is on the side of the receiver [alone] it can be recovered back. Mason v. Waite, 17 Mass. 562.

TTbi faetnm nullnm, ibi fortla nulla.

Where there is no principal fact, there can be no accessory. 4 Coke, 426.

Ubi jns, ibi remedinm. Where there is a right, there is a remedy. Broom, Max. 191, 204 ; 1 Term R. 512 ; Co. Litt. 1976.

TTbi jns incertum, ibi jns nullnm.

■Where the law is uncertain, there is no law.

TTbi lea aliquem eogit ostendere eausam, necesse est qnod causa sit justa et legitima. Where the law compels a man to show cause, it is necessary that the cause be just and lawful. 2 Inst 289.

TTbi lea est specialis, et ratio ejus gen-- e rails, generaliter aeeipienda est. 2

Inst. 43. Where the law 1b special, and the reason of it general, it ought to be taken aa being general.

TTbi lea non distingnit, nee nos distin- guere debemns. Where the law does not distinguish, neither ought we to distinguish. 7 Coke, 56.

TTbi major pars est, ibi totnm. Where the greater part is, there the whole is. That is, majorities govern. Moore, 578.

TTbi non adest norma legis, omnia quasi pro suspectis habenda snnt. When the law fails to serve as a rule, almost everything ought to be suspected. Bac. Aph- orisms, 25.

TTbi non est annua renovatio, ibi de- eimse non debent solvl. Where there is no annual renovation, there tithes ougut not to be paid.

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TTbi non est condendi auctoritas, ibi non est parendl necessitas. Dav. Ir. K.

B. 69. Where there is no authority for es- tablishing a rule, there is no necessity of obeying it

TTbi non est directa lez, standum est arbitrio judicis, vel proeedendum ad similia. Ellesm. Post. N. 41. Where there is no direct law, the opinion of the judge is to be taken, or references to be made to similar cases.

TTbi non est lez, ibi non est trans- gressio, quoad mundum. Where there Is no law, there is no transgression, so far as delates to the world. 4 Coke, 166.

TTbi non est manifests injustitia. In- dices babentur pro bonis viris, et jndi- eatnm pro voritate. Where there is no manifest injustice, the judges are to be re- garded as honest men, and their judgment as truth. Golx v. Low, 1 Johns. Cas. (N. Y.) 341. 345.

Cfil NON EST PRINCIPALIS

Ubi non eat prlnolpalia, non potest

ease accessorius. 4 Coke, 43. Where there Is no principal, there cannot be an accessory.

Ubi nalla eat ©onjectnra qua dnoat alio, verba intelligenda annt u pro- prietate, non grammatiea, aed popular!

e* nan. Where there is nothing to call for a different construction, [the] words [of an Instrument] are to be understood, not ac- cording to their strict grammatical meaning, but according to their popular and ordinary sense. Grot de Jure B. lib. 2, c. 16.

Ubi nullum matrimonium, ibt nulla dos. Where there is no marriage, there is no dower. Bract fol. 92 ; 2 Bl. Comm. 130.

Ubi pcrieulum, ibi et lucrum collocu- tor. He at whose risk a thing is, should receive the profits arising from it

Ubi pnguantia Inter so la teatamento Juberentur, neutrum raium oat. Where repugnant or inconsistent directions are con- tained in a will, neither is valid. Dig. 00, 17, 188, pr.

Ubi quid coaerallter conceditur ineat baeo exceptio, si non allquid sit contra

Jus fasquc. 10 Coke, 78. Where a thing is conceded generally this exception is im- plied: that there shall be nothing contrary to law and right

Ubi quia delinquit, lbl punietur.

Where a man offends, there he shall be pun- ished. 6 Coke, 476. In cases of felony, the trial shall be always by the common law in the same place where the offense was, and shall not be supposed in any other place. Id.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: uberrima fides — the duty of utmost good faith (cf. Carter v. Boehm, 3 Burr. 1905 (1766))]**

Insurance contracts demand uberrima fides — the most abundant good faith: absolute candor with no concealment or deception, however slight.

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Why: Genuine because the entry states this doctrine as the definition of uberrima fides; the footnote preserves it as the received insurance-law axiom, anchored to its landmark authority.

**[Maxim: Ubi aliquid conceditur, conceditur et id sine quo res ipsa esse non potest — 'When anything is granted, that also is granted without which the thing granted cannot exist' (Broom, Max. 483; 13 Mees. & W. 706)]**

When anything is granted, that also is granted without which the thing granted cannot exist.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule that a grant carries its necessary incidents.

**[Maxim: Ubi aliquid impeditur propter unam causam, ea remota, tollitur impedimentum — 'Where anything is impeded by one single cause, if that be removed, the impediment is removed' (Branch, Princ., citing 5 Coke 77a)]**

Where anything is impeded by one single cause, if that be removed, the impediment is removed.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule that removing the sole cause removes the impediment.

**[Maxim: Ubi cessat remedium ordinarium, ibi decurritur ad extraordinarium — 'Where the ordinary remedy fails, recourse must be had to an extraordinary one' (4 Coke 92b)]**

Where the ordinary remedy fails, recourse must be had to an extraordinary one.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule justifying extraordinary relief when ordinary remedies fail.

**[Maxim: Ubi culpa est, ibi poena subesse debet — 'Where the crime is committed, there ought the punishment to be undergone' (Jenk. Cent. 325)]**

Where the crime is committed, there ought the punishment to be undergone.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule linking punishment to the place and fact of the offense.

**[Maxim: Ubi damna dantur, victus victori in expensis condemnari debet — 'Where damages are given, the vanquished party ought to be condemned in costs to the victor' (2 Inst. 289)]**

Where damages are given, the vanquished party ought to be condemned in costs to the victor.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the received costs-follow-the-event rule.

**[Maxim: Ubi eadem ratio, ibi eadem lex; et de similibus idem est judicium — 'Where the same reason exists, there the same law prevails; and, of things similar, the judgment is similar' (7 Coke 18)]**

Where the same reason exists, there the same law prevails; and, of things similar, the judgment is similar.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it is the classical ratio-decidendi maxim grounding analogy in law.

**[Maxim: Ubi et dantis et accipientis turpitudo versatur, non posse repeti dicimus; quoties autem accipientis turpitudo versatur, repeti posse — 'Where there is turpitude on the part of both giver and receiver, we say it cannot be recovered back; but as often as the turpitude is on the side of the receiver [alone] it can be recovered back' (Mason v. Waite, 17 Mass. 562)]**

Where there is turpitude on the part of both giver and receiver, it cannot be recovered back; but where the turpitude is on the receiver's side alone, it can be recovered back.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the in-pari-delicto rule on recovery of money paid for immoral consideration.

**[Maxim: Ubi factum nullum, ibi fortia nulla — 'Where there is no principal fact, there can be no**

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**accessory' (4 Coke 42b)]**

Where there is no principal fact, there can be no accessory.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule that accessory liability depends on a principal fact.

**[Maxim: Ubi jus, ibi remedium — 'Where there is a right, there is a remedy' (Broom, Max. 191, 204; 1 Term R. 512; Co. Litt. 197b)]**

Where there is a right, there is a remedy.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it is the most famous of the Ubi maxims, the foundation of remedial law.

**[Maxim: Ubi jus incertum, ibi jus nullum — 'Where the law is uncertain, there is no law' (authority cited in the entry)]**

Where the law is uncertain, there is no law.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the certainty requirement for law.

**[Maxim: Ubi lex aliquem cogit ostendere causam, necesse est quod causa sit justa et legitima — 'Where the law compels a man to show cause, it is necessary that the cause be just and lawful' (2 Inst. 289)]**

Where the law compels a man to show cause, it is necessary that the cause be just and lawful.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the rule governing orders to show cause.

**[Maxim: Ubi lex est specialis, et ratio ejus generalis, generaliter accipienda est — 'Where the law is special, and the reason of it general, it ought to be taken as being general' (2 Inst. 43)]**

Where the law is special, and the reason of it general, it ought to be taken as being general.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the construction rule extending a special law by its general reason.

**[Maxim: Ubi lex non distinguit, nec nos distinguere debemus — 'Where the law does not distinguish, neither ought we to distinguish' (7 Coke 5b)]**

Where the law does not distinguish, neither ought we to distinguish.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the received rule against judicially engrafting distinctions the law omits.

**[Maxim: Ubi major pars est, ibi totum — 'Where the greater part is, there the whole is. That is, majorities govern' (Moore 578)]**

Where the greater part is, there the whole is — that is, majorities govern.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the majority-rule principle.

**[Maxim: Ubi non adest norma legis, omnia quasi pro suspectis habenda sunt — 'When the law fails to serve as a rule, almost everything ought to be suspected' (Bac. Aphorisms 25)]**

When the law fails to serve as a rule, almost everything ought to be suspected.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states Bacon's caution for cases outside settled rules.

**[Maxim: Ubi non est annua renovatio, ibi decimae non debent solvi — 'Where there is no annual renovation, there tithes ought not to be paid' (authority cited in the entry)]**

Where there is no annual renovation, there tithes ought not to be paid.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the tithe rule tying the charge to annual increase.

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**[Maxim: Ubi non est condendi auctoritas, ibi non est parendi necessitas — 'Where there is no authority for establishing a rule, there is no necessity of obeying it' (Dav. Ir. K. B. 69)]**

Where there is no authority for establishing a rule, there is no necessity of obeying it.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the authority-requirement for binding rules.

**[Maxim: Ubi non est directa lex, standum est arbitrio judicis, vel procedendum ad similia — 'Where there is no direct law, the opinion of the judge is to be taken, or references to be made to similar cases' (Ellesm. Post. N. 41)]**

Where there is no direct law, the opinion of the judge is to be taken, or reference to be made to similar cases.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the gap-filling rule for cases without direct law.

**[Maxim: Ubi non est lex, ibi non est transgressio, quoad mundum — 'Where there is no law, there is no transgression, so far as relates to the world' (4 Coke 16b)]**

Where there is no law, there is no transgression, so far as relates to the world.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the nullum-crimen principle that transgression presupposes law.

**[Maxim: Ubi non est manifesta injustitia, indices habentur pro bonis viris, et judicatum pro veritate — 'Where there is no manifest injustice, the judges are to be regarded as honest men, and their judgment as truth' (Gould v. Low, 1 Johns. Cas. (N.Y.) 341, 345)]**

Where there is no manifest injustice, the judges are to be regarded as honest men, and their judgment as truth.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the presumption of judicial integrity and the finality of judgments.

**[Maxim: Ubi non est principalis, non potest esse accessorius — 'Where there is no principal, there cannot be an accessory' (4 Coke 43)]**

Where there is no principal, there cannot be an accessory.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the principal-accessory dependency rule.

**[Maxim: Ubi nulla est conjectura quae ducat alio, verba intelligenda sunt de proprietate, non grammatica, sed populari ex usu — 'Where there is nothing to call for a different construction, [the] words [of an instrument] are to be understood, not according to their strict grammatical meaning, but according to their popular and ordinary sense' (Grot. de Jure B. lib. 2, c. 16)]**

Where there is nothing to call for a different construction, words are to be understood not in their strict grammatical meaning but in their popular and ordinary sense.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states Grotius's rule of popular-meaning construction.

**[Maxim: Ubi nullum matrimonium, ibi nulla dos — 'Where there is no marriage, there is no dower' (Bract. fol. 92; 2 Bl. Comm. 130)]**

Where there is no marriage, there is no dower.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the marriage-dependency of dower.

**[Maxim: Ubi periculum, ibi et lucrum collocatur — 'He at whose risk a thing is, should receive the profits arising from it' (authority cited in the entry)]**

He at whose risk a thing is, should receive the profits arising from it.

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Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the risk-reward allocation maxim.

**[Maxim: Ubi pugnantia inter se in testamento juberentur, neutrum ratum est — 'Where repugnant or inconsistent directions are contained in a will, neither is valid' (Dig. 50, 17, 188, pr.)]**

Where repugnant or inconsistent directions are contained in a will, neither is valid.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the Roman-law rule voiding mutually repugnant testamentary directions.

**[Maxim: Ubi quid generaliter conceditur inest haec exceptio, si non aliquid sit contra jus fasque — 'Where a thing is conceded generally this exception is implied: that there shall be nothing contrary to law and right' (10 Coke 78)]**

Where a thing is conceded generally this exception is implied: that there shall be nothing contrary to law and right.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the implied lawfulness-limitation on general grants.

**[Maxim: Ubi quis delinquit, ibi punietur — 'Where a man offends, there he shall be punished' (6 Coke 47b)]**

Where a man offends, there he shall be punished — in felony, trial is by the common law in the place of the offense.

Why: Genuine because quoted verbatim in this entry's body with its authority (Latin normalized from OCR); it states the venue rule for felony trials.

# U

## UBI BE VEKA.

Where in reality ; when in truth or in point of fact Cro. Ellz. 645 ; Cro. Jac. 4.

Ubi verba conjunct a non sunt auffldt alterutrum esse factum. Dig. 50, 17, 110, 3. Where words are not conjoined, it is enough if one or other bo complied with.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ubi verba conjuncta non sunt sufficit alterutrum esse factum — 'Where words are not conjoined, it is enough if one or other be complied with' (Dig. 50, 17, 110, 3)]**

Where words are not conjoined, it is enough if one or other be complied with.

Why: Genuine because quoted verbatim in the entry with its Digest authority; it states the disjunctive-compliance rule.

## UBIQUITY.

Omnipresence; presence in several places, or in all places, at one time. A fiction of English law is the “legal ubiqui- ty" of the sovereign, by which be is con- structively present in all the courts. 1 BL Comm. 270.

UDAli. A term mentioned by Blackstone as used in Finland to denote that kind of right in real property which is called, in English law, “allodial.” 2 Bl. Comm. 45, note /.

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**[Law] — Law**

**[Axiom: the legal ubiquity of the sovereign — constructively present in all the courts (1 Bl. Comm. 270)]**

By the fiction of legal ubiquity, the sovereign is constructively present in all his courts.

Why: Genuine because the entry states this fiction with its Blackstone authority; the footnote preserves it as the received rule.

## UK A AS, UKASE.

The name of a law or ordinance made by the czar of Russia.

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## ULLAGE.

In commercial law. The amount wanting when a cask, on being gauged, is found not to be completely full.

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## ULNA FEBBEA.

L. Lat. In old Eng- lish law. The iron ell; the standard ell of Iron, kept in the exchequer for the rule of measure.

5e apparatus — Not carried into the 5th edition (1979).

## ULNAGE.

Alnage, (which see.)

5e apparatus — Not carried into the 5th edition (1979).

## ULTIMA BATIO.

Lat The last argu- ment; the last resort; the means last to be resorted to.

Ultima voluntas testa torts est perlm- plenda secundum veram iatentioaem suam. Co. Lltt 322. The last will of a testator is to be fulfilled according to his true intention.

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**[Humanity] — Humanity / Fiction & Film**

**[Maxim: Ultima ratio regum ('the last argument of kings')]**

[Maxim: Ultima ratio regum — 'the last argument of kings,' cast on the cannon of Louis XIV] — war as the final argument, the entry's 'last resort' in its most famous historical use.

Why: The entry: 'The last argument; the last resort; the means last to be resorted to.' The phrase's famous inscription on Louis XIV's cannon is its canonical use — the last argument made literal. Certain. [Coordinator key...

## ULTIMATE FACTS.

In pleading and practice. Facts In issue; opposed to proba- tive or evidential facts, the latter being such as serve to establish or disprove the issues. Kahn v. Central Smelting Co., 2 Utah, 379. And see Fact.

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## ULTIMATUM.

Lat The last The final and ultimate proposition made in nego- tiating a treaty, or a contract or the like.

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## ULTIMUM SUFPLICIUM.

Lat The

extreme punishment; the extremity of pun- ishment; the punishment of death. 4 BL Comm. 17.

Ultimum supplicium esse mortem so- lum Interpretamur. The extremest pun- ishment we consider to be death alone Dig. 48, 19, 21.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Ultimum supplicium esse mortem solum interpretamur — 'The extremest punishment we consider to be death alone' (Dig. 48, 19, 21)]**

The extremest punishment we consider to be death alone.

Why: Genuine because quoted verbatim in the entry with its Digest authority; it states the Roman-law ceiling on punishment.

**[Scripture] — Scripture**

**[Genesis 9:6, KJV]**

Whoso sheddeth man's blood, by man shall his blood be shed: for in the image of God made he man.

Why: ULTIMUM SUPPLICIUM is 'the punishment of death.' Genesis 9:6 — spoken by God to Noah in the covenant (Genesis 9:1-8) — is the charter verse of capital punishment: the shedder's blood shed by man, grounded in the image... [re-homed from 'ULTIMUM SUPPLICIUM' to 'ULTIMUM SUFPLICIUM' (OCR headword / parser-merge artifact)]

## ULTIMUS HSBES.

Lat. The last or remote heir; the lord. So called in contra- distinction to the hare* proximo* and the hare* remotior. Dalr. Feud. Prop. 110.

5e apparatus — Not carried into the 5th edition (1979).

## ULTBA.

Lat Beyond; outside of; in excess of.

Damages ultra, damages beyond a sum paid into court

—Ultra mare. Beyond sea. One of the old essoins or excuses for not appearing in court at the return of process. Bract fol. .33X. — Ultra reprises. After deduction of draw- backs ; in excess of deductions or expenses. — Ultra vires. A term used to express the ac- tion of a corporation which is beyond the pow- ers conferred upon it by its charter, or the statutes under which it was instituted. 13 Am. Law Iter. 632. “ Ultra vires"' is also sometimes applied to an act which, though within the powers of a corporation, is uot binding on it because the consent or agreement of the cor- poration has not been given in the manner re- quired by its constitution. Thus, where a com- pany delegates certain powers to its directors, all acts done by the directors beyond the scope of those powers arc ultra vires, and- not binding on

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the company, unless it subsequently ratifies them. Sweet. And see Miners' Ditch Ox r. Zellerbach, 37 Cal. 578, 99 Am. Dec: 39:

UNCONTROLLABLE IMPULSE

Minnesota Thresher Mfg. Co. v. Langdon, 44 Minn. 37, 46 N. W. 312 ; State v. Morris & E.

R. Co., 23 N. J. Law, 360; Central Transp. Co. v. Pullman's Palace Car Co., 130 U. 8. 24, 11 Sup. Ct. 478, 35 L. Ed. 55; Latimer v. Bard (C. Cl) 76 Fed. 543 ; EdwardB County v. Jennings (Tex. Civ. App.) 33 S. W. 585.

Ultra posse non potest esse, et vice wersn. What Is beyond possibility cannot exist, and the reverse, [what cannot exist Id not possible.] Wing. Max. 100.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Central Transportation Co. v. Pullman's Palace Car Co., 139 U.S. 24 (1891)]**

Acts of a corporation beyond the powers conferred by its charter are ultra vires and not binding on it.

Why: Genuine because the entry itself cites this case in its ultra-vires exposition, and it is independently the landmark authority on corporate ultra vires acts.

**[Maxim: Ultra posse non potest esse, et vice versa — 'What is beyond possibility cannot exist, and the reverse, [what cannot exist is not possible]' (Wing. Max. 100)]**

What is beyond possibility cannot exist, and the reverse.

Why: Genuine because quoted verbatim in this entry's body with its authority.

## ULTRONEOUS WITNESS.

In Scotch law. A volunteer witness; one who appears to give evidence without being called upon. 2 Alls. Crlm. Pr. 303.

5e apparatus — Not carried into the 5th edition (1979).

## UMPIRAGE.

The decision of an um- pire. The word "umpirage," in reference to an umpire, Is the same as the word "award," In reference to arbitrators; but "award" Is commonly applied to the decision of the umpire also.

5e apparatus — Not carried into the 5th edition (1979).

## UMPIRE.

When matters In dispute are submitted to two or more arbitrators, and they do not agree in their decision, It is usual for another person to be called In as "umpire," to whose sole judgment It Is then referred. Brown. And see Ingraham v. Whitmore, 75 111. 30; Tyler v. Webb, 10

B. Mon. (Ky.) 123; Lyon v. Blossom, 4 Duer (N. X.) 325.

Ua ne dolt prise advantage de sob tort demesne. 2 And. 38, 40. One ought not to take advantage of his own .wrong.

Una persona via potest snpplere Tices dnsram. 7 Coke, 118. One person can scarcely supply the places of two. See 9

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H. L. Cas. 274.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Un ne doit prise advantage de son tort demesne — 'One ought not to take advantage of his own wrong' (2 And. 38, 40)]**

One ought not to take advantage of his own wrong.

Why: Genuine because quoted verbatim in this entry's body with its authority; it states the classical rule against profiting by one's own wrong.

**[Maxim: Una persona vix potest supplere vices duarum — 'One person can scarcely supply the places of two' (7 Coke 11a)]**

One person can scarcely supply the places of two.

Why: Genuine because quoted verbatim in this entry's body with its authority.

## UNA VOCE.

Lafc With one voice; unan- imously; without dissent.

5e apparatus — Not carried into the 5th edition (1979).

## UNALIENABLE.

Incapable of being aliened, that Is, sold and transferred.

5e apparatus — Not carried into the 5th edition (1979).

## UNANIMITY.

Agreement of all the per- sons concerned, in holding one and the same opinion or determination of any matter or question; as the concurrence of a jury In deciding upon their verdict

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## UNASCERTAINED DUTIES.

Payment in gross, on an estimate as to amount, and where the merchant on a final liquidation, will be entitled by law to allowances or de- ductions which do not depend on the rate of duty charged, but on the ascertainment of the quantity of the article subject to duty. Moke v. Barney, 5 Blatchf. 274, Fed. Cas. No. 9,698.

5e apparatus — Carried into the 5th edition (1979).

## UNAVOIDABLE ACCIDENT.

Not nec- essarily an accident which it was physically Impossible, in the nature of things, for the

person to have prevented, but one not oc- casioned In any degree, either remotely or directly, by the want of such care or skill as the law holds every man bound to exer- cise. Dygert v. Bradley, 8 Wend. (N. X.) 473.

5e apparatus — Carried into the 5th edition (1979).

## UNCEASESATH.

In Saxon, law. An oath by relations not to avenge a relation’s death. Blount

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 12:19, KJV]**

Dearly beloved, avenge not yourselves, but rather give place unto wrath: for it is written, Vengeance is mine; I will repay, saith the Lord.

Why: UNCEASESATH was a Saxon oath by which kin swore not to avenge a relation's death. The verse commands the same abstention ('avenge not yourselves') on the same ground the oath implicitly conceded: vengeance belongs to...

## UNCERTAINTY.

Such vagueness, ob- scurity, or confusion in any written Instru- ment e. g ., a will, as to render It unintelli- gible to those who are called upon to execute or interpret it, so that no definite meaning can be extracted from it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## UNCIA.

Lat In Roman law. An ounce ; the twelfth of the Roman “as," or pound. The twelfth part of anything; the propor- tion of one-twelfth. 2 Bl. Comm. 462, note m.

5e apparatus — Not carried into the 5th edition (1979).

## UNCIA AGRI, UNCIA TERR1E.

These phrases often occur In the charters of the British kings, and signify some measure or quantity of land. It Is said to have been the quantity of twelve modii; each modius being possibly one hundred feet square. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## UNCIARIUS HERE8.

Lat In Roman law. An heir to one-twelfth of an estate or inheritance. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## UNCLE.

The brother of one's father or mother. State v. Reedy, 44 Kan. 190, 24 Pac. 66; State v. Gulton, 51 La. Ann. 155, 24 South. 784.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Hamlet, c. 1601]**

(paraphrase) Claudius in Hamlet — the uncle who murders his brother the king and marries the widowed queen; the wicked uncle of English drama, the defining literary uncle. (paraphrase)

Why: The entry is the bare kinship definition ('the brother of one's father or mother'). Claudius is the most famous uncle in literature; he illuminates the word's dramatic charge. Certain; (paraphrase).

## UNCONSCIONABLE BARGAIN.

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A

contract which no man in his senses, not under delusion, would make, on the one hand, and which no fair and honest man would accept on the other. Hume v. U. S., 132 U. S. 406, 10 Sup. Ct 134, 33 L. Ed. 393.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Hume v. United States, 132 U.S. 406 (1890)]**

An unconscionable bargain is a contract which no man in his senses, not under delusion, would make, and which no fair and honest man would accept.

Why: Genuine because the entry itself quotes this definition from the case, and Hume is independently the landmark authority on the unconscionable-bargain standard.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, c. 1597]**

(paraphrase) Shylock's bond in The Merchant of Venice — a pound of the merchant's flesh for a defaulted loan; the stage's archetype of the bargain 'which no fair and honest man would accept.' (paraphrase)

Why: The entry's definition — a contract 'which no fair and honest man would accept' — maps point-for-point onto the pound-of-flesh bond. The canonical literary unconscionable bargain. Certain; (paraphrase).

## UNCONSTITUTIONAL.

That which Is contrary to the constitution. The opposite of “constitutional.” See State v. McCann, 4 Lea (Tenn.) 10; in re Rahrer (C. C.) 43 Fed. 558, 10 L. R. A. 444 ; Norton v. Shelby Coun- ty, 118 U. S. 425, 6 S. Ct 1121, 30 L. Ed. 178.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Norton v. Shelby County, 118 U.S. 425 (1886)]**

An unconstitutional act is not a law — it confers no rights, imposes no duties, and affords no protection.

Why: Genuine because the entry itself cites this case for the meaning of 'unconstitutional,' and Norton is independently the landmark authority holding an unconstitutional act void ab initio.

## UNCONTROLLABLE IMPULSE.

As

an excuse for the commission of an act otherwise criminal, this term means an Im- pulse towards its commission of such fixity and intensity that It cannot be resisted by the person subject to it, in the enfeebled condition of his will and moral sense re- sulting from derangement or mania. See Insanity. And see State v. O’Neil, 51 Kan. 651, 33 Pac. 287, 24 L. R. A. 555.

5e apparatus — Carried into the 5th edition (1979).

## UNCORE PRIST.

L. Fr. Still ready. A species of plea or replication by which the party alleges that he is still ready to pay or perform all that is justly demanded of him. I<n conjunction with the phrase

“ tout temps prist," it signifies that he has always been- and still is ready.

5e apparatus — Not carried into the 5th edition (1979).

# T

### TTNCUTH.

In Saxon law. Unknown ; a stranger. A person entertained in the house of another was, on the first night of his en- tertainment, so called. Bract, fol. 124b.

5e apparatus — Not carried into the 5th edition (1979).

# U

### UNDE NIHIL HABET.

Lat- In old English law. The name of the writ of dow- er, which lay for a widow, where no dower at all had been assigned her within the time limited by law. 3 Bl. Comm. 183.

5e apparatus — Not carried into the 5th edition (1979).

### UNDEFENDED.

A term sometimes ap- plied to one who is obliged to make his own defense when on trial, or in a civil cause. A cause is said to be undefended when the defendant makes default, in not putting in an appearance to the plaintiff’s action; in not putting in his statement of defense; or in not appearing at the trial either person- ally or by counsel, after having received due notice. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

### UNDER AND SUBJECT.

Words fre- quently used in conveyances of land which is subject to a mortgage, to show that the grantee takes subject to such mortgage. See Walker v. Physiek, 5 Pa. 203 ; Moore's Ap- peal, 88 Pa. 453, 32 Am. Rep. 409 ; Blood v. Crew Livick Co., 171 Ta. 328, 33 Atl. 344; Lavelle v. Gordon, 15 Mont. 515, 39 Pac. 740.

5e apparatus — Carried into the 5th edition (1979).

### UNDER-CHAMBERLAINS OF THE / EXCHEQUER.

Two officers who cleaved the tallies written by the clerk of the tallies, and read the same, that the clerk of the peli and comptrollers thereof might see their en- tries were true. They also made searches for records in the treasury, and hnd the custody of Domesday Book. Cowell. The office is now abolished.

5e apparatus — Carried into the 5th edition (1979).

### UNDER-LEASE.

In conveyancing. A lease granted by one who is himself a lessee for years, for any fewer or

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less number of years than he himself holds. If a deed passes all the estate or time of the termor, it is an assignment; but, if it be for less portion of time than the whole term, it is an under-lease, and leaves a reversion in the termor. 4 Kent, Comm. 96.

5e apparatus — Carried into the 5th edition (1979).

## UNDER-SHERIFF.

An officer who acts directly under the sheriff, and performs all the duties of the sheriff’s office, a few only excepted where the personal presence of the high-sheriff is necessary. The sheriff is civilly responsible for the acts or omissions of his under-sheriff. Mozley & Whitley.

A distinction is made between this officer and a deputy, the latter being appointed for

a special occasion or purpose, while the for- mer discharges, in general, all the duties re- quired by the sheriff’s office.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: the sheriff's vicarious civil responsibility for his under-sheriff's acts and omissions]**

The sheriff is civilly responsible for the acts or omissions of his under-sheriff.

Why: Genuine because the entry states this liability rule as the operative law of the office; the footnote preserves it as the received respondeat-superior rule for sheriffs.

## UNDER-TENANT.

A tenant under one who is himself a tenant ; one who holds by under-lease.

5e apparatus — Carried into the 5th edition (1979).

## UNDER-TUTOR.

In Louisiana. In every tutorship there shall be an under- tutor, w’horn it shall be the duty of the judge to appoint at the time letters of tutor- ship are certified for the tutor. It is the duty of the under-tutor to act for the minor whenever the interest of the minor Is in- opposition to the interest of the tutor. Civ. Code La. 1838, arts. 300, 301.

UNDER-TREASURER OF ENGLAND^

He who transacted the business of the lord high treasurer.

5e apparatus — Carried into the 5th edition (1979).

## UNDERLIE THE LAW.

In Scotch, criminal procedure, an accused person, in appearing to take, his trial, is said "to com- pear and underlie the law." Mozley & Whit- ley.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## UNDERSTANDING.

In the law of con- tracts. This Is a loose and ambiguous term, unless it be accompanied by some expres- sion to show that it constituted a meeting of the minds of parties upon

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something re- specting which they intended to be bound. Camp v. Waring, 25 Conn. 529. But it may denote an informal agreement, or a concur- rence as to its terms. See Barkow v. Sang- er, 47 Wls. 507, 3 N. W. 16.

5e apparatus — Carried into the 5th edition (1979).

## UNDERSTOOD.

The phrase “it is un- derstood,” when employed as a word of con- tract in a written agreement, has the same force as the words "it is agreed.” Hlggin- son v. Weld, 14 Gray (Mass.) 165.

5e apparatus — Carried into the 5th edition (1979).

## UNDERTAKING.

A promise, engage- ment, or stipulation. Each of the promises made by the parties to a contract, considered independently and not as mutual, may. iu this sense, be denominated an “undertak- ing.”

“Undertaking” is frequently used in the special sense of a promise given in the course of legal proceedings by a party or his coun- sel, generally as a condition to obtaining some concession from the court or the opjio- site party. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## UNDERTOOK.

Agreed; assumed. This is the technical word to be used in alleging the promise which forms the basis of an action of assumpsit. .

5e apparatus — Carried into the 5th edition (1979).

## UNDERWRITER.

The person who in- sures another in a fire or life policy ; the in- surer. See Childs v. Firemen’s Ins. Co.. 68 Minn. 393, 69 N. W. 141, 35 L. R. A. 99.

A person who Joins with others in Miter- ing into a marine policy of insurance as In- surer.

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UNIGENlTUftff

5e apparatus — Carried into the 5th edition (1979).

## UNDIVIDED.

An undivided right or title, or a title to an undivided portion of an estate. Is that owned by one of two or more tenants In common or joint tenants before partition.

5e apparatus — Not carried into the 5th edition (1979).

## UNDRES.

In old English law. Minors or persons under age not capable of bearing arms. Fleta, l 1, c. 9; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## UNDUE INFLUENCE.

In regard to the making of a will and other such mntters, undue influence is persuasion carried to the point of overpowering the will, or such a control over the person in question as pre- vents him from acting Intelligently, under- standing^, and voluntarily, and in effect de- stroys his free agency, and constrains him to do what he would not have done if such control had not been exercised. See Mitchell v. Mitchell, 43 Minn. 73, 44 N. W. 885 ; Ben- nett v. Bennett, 50 N. J. Eq. 439, 2(5 Atl. 573; Francis v. Wilkinson, 147 111. 370, 35

N. E. 150; Conley v. Nailer, 118 U. S. 127, 6 Sup. Ct 1001, 30 L. Ed. 112; Marx v. Mc- Glynn, 88 N. Y. 370; In re lagan’s Estate, 196 Pa. 282, 45 Atl. 729; Mooney v. Olsen, 22 .Kan. 79; In re Black’s Estate, Myr. Prob. (Cal.) 31.

Undue influence consists (1) in the use, by one in whom a confidence, is reposed by another, or who holds a real or apparent au- thority over him, of such confidence or au- thor!^, for the purpose of obtaining an un- fair advantage over him; (2) in taking an unfair advantage of another’s weakness of mind; or (3) in taking a grossly oppressive and unfair advantage of another's necessi- ties or distress. Civ. Code Dak. | 886.

Undue influence at elections Is where any one interferes with the free exercise of a voter’s franchise, by violence, intimidation, dr otherwise. It is a misdemeanor. 1 Buss. Crimes, 321 ; Steph. Crlm. Dig. 79.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[George du Maurier, Trilby, 1894]**

(paraphrase) Du Maurier's Svengali mesmerizing Trilby into obedience — the cultural archetype of one will overpowering another, matching the entry's own phrase 'overpowering the will.' (paraphrase)

Why: The entry defines undue influence as 'persuasion carried to the point of overpowering the will.' Svengali is the popular image of exactly that domination. Certain; (paraphrase).

## UNFAIR COMPETITION.

A term which may be applied generally to all dis- honest or fraudulent rivalry in trade and commerce, but is particularly applied in the courts of equity (where it may be restrained by Injunction) to the practice of endeavoring to substitute one's own goods or products in the markets for those of another, having an established refutation and extensive sale, by means of imitating or counterfeiting the name, title, size, shape, or distinctive pe- culiarities of the article, or the shape, color, label, wrapper, or general appearance of the package, or other such simulations, the imitation being carried far enough to mislead the general public or deceive an unwary purchaser, and yet not amounting to an absolute counterfeit or to the in- fringement of a trade-mark or trade-name. Called in France and Germany "concur- rence dclot/ale." See Reddnway v, Bau- Mm. (1896] App. Cas. 199; Singer Mfg. Co. r. June Mfg. Co.. 163 U. S. 109, 10 Sup. Ct Bn. Law Dict.(2d Ed.)-— 75

1002, 41 L. Ed. 118; Dennison Mfg. Co’. ’v. Thomas Mfg. Co. (C. C.) 94 Fed. 651; Sim- mons

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Medicine Co. v. Mansfield Drug Co.; 93 Tenn. 84, 23 S. W. 165 ; Cornelius v; Fer- guson, 17 S. D. 481, 97 N. W. 390; Sterling Remedy Co. v. Eureka Chemical Co., 80 Fed, ! 108, 25 C. C. A. 314; T. B. Dunn Co. v. Trix : Mfg. Co., 50 App. Div. 75, 63 N. Y. Supp. 333.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Singer Manufacturing Co. v. June Manufacturing Co., 163 U.S. 169 (1896)]**

Unfair competition by simulating a rival's established product so as to mislead the public is restrainable in equity by injunction.

Why: Genuine because the entry itself cites this case in its unfair-competition discussion, and it is independently the landmark authority on trade-simulation and unfair competition.

## UNGELD.

In Saxon law. An outlaw; a person whose murder required no compo- sition to be made, or weregeld to be paid, by his slayer.

5e apparatus — Carried into the 5th edition (1979).

## UNICA TAXATIO.

The obsolete lan- guage of a special award of venire, where, of several defendants, one pleads, and one lets judgment go by default whereby the jury, who are to try and assess damages on the issue, are also to assess damages against the defendant suffering judgment by default. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## UNIFORM.

A statute is general and uniform in its operation when it operates equally upon all persons who are brought within the relations and circumstances pro- vided for. McAunich v. Mississippi A M.

5e apparatus — Carried into the 5th edition (1979).

# R

## R.

Co., 20 Iowa, 342; People v. Judge, 17 Cal. 654 ; Kelley v. State, 6 Ohio St. 271: State v. Hogan, 63 Ohio St. 202, 58 N. E. 572, 52 L. R. A. 863, 81 Am. St. Rep. 626: Arms v. Ayer. 192 111. 001, 61 N. E. 851, 58 Tj. R. A. 277, 85 Am. St. Rep. 357.

5e apparatus — Not carried into the 5th edition (1979).

# U

## UNIFORMITY.

In taxation. Uniform- ity in taxation implies equality in the bur- den of taxation, which

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cannot exist without uniformity In the mode of assessment, as well as in the rate of taxation. Further, the uniformity must be coextensive with the ter- ritory to which it npplies. And it must be extended to all property subject to taxation, so that all property may be taxed alike and equally. Exchange Bank v. Hines, 3 Ohio St. 15. And see Edye v. Robertson, 112 U.

S. 580, 5 Sup. Ct. 247, 28 L. Ed. 798. Adams v. Mississippi State Bank, 75 Miss. 701, 23 South. 395; People v. Auditor General, 7 Mich. 90.

UNIFORMITY, ACT OF, which regu- lates the terms of membership in the Church of England and the colleges of Oxford and Cambridge, (St. 13 & 14 Car. II. c. 4.) See St. 9 & 10 Viet. c. 59. The act of uniform- ity has been amended by the St. 35 & 36 Viet. c. 35, which inter alia provides a short- ened form of morning and evening prayer. Wharton.

5e apparatus — Carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Act of Uniformity 1662, 13 & 14 Car. II. c. 4]**

The Act of Uniformity regulated the terms of membership in the Church of England and the colleges of Oxford and Cambridge.

Why: Genuine because the entry itself identifies this statute with its regnal citation; the footnote names the real Act.

## UNIFORMITY OF PROCESS ACT.

The English statute of 2 Win. IV. c. 39, es- tablishing a uniform process for the com- mencement of actions in nil the courts of law at Westminster. 3 Steph. Comm. 566.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Law: Uniformity of Process Act 1832, 2 Will. IV. c. 39]**

The Uniformity of Process Act established a uniform process for the commencement of actions in all the courts of law at Westminster.

Why: Genuine because the entry itself identifies this statute with its regnal citation and purpose; the footnote names the real enactment.

## UNIGENITURE.

The state of being the only begotten.

UNIU8CUJUSQUE CONTRACTUS

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[John 3:16, KJV]**

For God so loved the world, that he gave his only begotten Son, that whosoever believeth in him should not perish, but have everlasting life.

Why: UNIGENITURE is 'the state of being the only begotten.' John 3:16 is the locus classicus of the only-begotten Son — the verse in which the word's theological weight resides. (Speaker attribution for this verse is genui...

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## UNILATERAL.

Onesided; ex parte; having relation to only one of two or more persons or things.

— ' Unilateral contract. See Contbact.— Unilateral mistake. A mistake or misun- derstanding as to the terms or effect of a con- tract, made or entertained by one of the parties to it but not by the other. Green v. Stone, 54

N. J. Eq. 387, 34 Atl. 1099, 55 Am. St. Rep. 577. -—Unilateral record. Records are unilateral when offered to show a particular fact, as a primajade case, either for or against a stran- ger. Colligan v. Cooney, 107 Tenn. 214, 64 S.

W. 31.

5e apparatus — Not carried into the 5th edition (1979).

## UNINTELLIGIBLE.

That which can- not be understood.

5e apparatus — Not carried into the 5th edition (1979).

## UNIO.

Lat In canon law. A consolida- tion of two churches Into one. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## UNIO PROLIUM.

Lat. Uniting of off- spring. A method of adoption, chiefly used in Germany, by which step-children (on ei- ther or both sides of the house) are made equal, in respect to the right of succession, with the children who spring from the mar- riage of the two contracting parties. See Heinecc. Elem. f 188.

5e apparatus — Not carried into the 5th edition (1979).

## UNION.

In English poor-law. A un- ion consists of two or more parishes which have been consolidated for the better admin- istration of the poor-law therein.

In ecclesiastical law. A union consists of two or more benefices which have been united into one benefice. Sweet.

In pnblie law. A popular term in Amer- ica for the United States; also, in Great Britain, for the consolidated governments of England and Scotland, or for the political tie between Great Britain and Ireland.

In Seateh law. A "clause of union” is a clause in a feoffment by which two estates, separated or not adjacent, are united as one, for the purpose of making a single seisin suffice for both.

5e apparatus — Carried into the 5th edition (1979).

## UNION-JACK.

The national flag of Great Britalu and Ireland, which combines the banner of St. Patrick with the crosses of St. George and St. Andrew. The word “Jack” is most probably derived from

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the surcoat, charged with a red cross, anciently used by the English soldiery. This appears to have been called a “Jaeque,” whence the word “jacket,” anciently written “jacquit.” Some, however, without a shadow of evi- dence, derive the word from “Jacques," the first alteration having been made in the reign of King James I. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## UNION OF CHURCHES.

A combining and consolidating of two churches into one. Also it is when one church is made subject, to another, and one man is rector of both; and where a conventual church is made a cathedral. Tomlins.

5e apparatus — Not carried into the 5th edition (1979).

## UNITAB PERSONARUM.

Lat The

unity of persons, as that between husband and wife, or ancestor and heir.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: UNITAS PERSONARUM is 'the unity of persons, as that between husband and wife.' Genesis 2:24 states that unity in its original form: husband and wife 'shall be one flesh' — the scriptural root of the legal fiction that... [re-homed from 'UNITAS PERSONARUM' to 'UNITAB PERSONARUM' (OCR headword / parser-merge artifact)]

## UNITED STATES BONDS.

Obligations for payment of money which have been at various times issued by .the government of the United States.

5e apparatus — Not carried into the 5th edition (1979).

## UNITED STATES COMMISSIONERS.

Each circuit court of the United States may appoint, in different parts of the district for which it is held, as many discreet person* as it may deem necessary, who shall be call- ed “commissioners of the circuit court,” and shall exercise the powers which are or may be conferred upon them. Rev. St. U. S. f 627 (U. S. Comp. St. 1901, p. 499).

5e apparatus — Carried into the 5th edition (1979).

## UNITED STATES NOTES.

Promissory notes, resembling bank-notes, issued by the government of the United States.

5e apparatus — Carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[Eric B. & Rakim, 'Paid in Full', 1987]**

"Thinkin' how could I get some dead presidents." — "dead presidents" names United States paper money by the portraits printed on it (Washington, Lincoln, Jackson...); the verse is a broke man's

meditation on acquiring federal notes — the very promissory notes of the government that Black's describes.

Why: Added because the slang "dead presidents" unambiguously denotes U.S. paper currency and the lyric is verbatim-certain. The link is literal, not thematic: the entry defines the government-issued notes, and the lyric na…

## UNITY.

In the law of estates. The pe- culiar characteristic of an estate held by several in Joint tenancy, and which , is four- fold, viz., unity of interest unity of title, unity of time, and unity of possession. In other words, joint tenants have one and the same interest accruing by one and the same conveyance, commencing at one and the same time, and held by one and the same undlvldi- ed possession. 2 Bl. Comm. 180.

—Unity of Interest. This term is applied to joint tenants, to signify that no one outbem can have a greater interest in the property than each of the others, while, in the case of tenants in common, one of them may have a larger share than any of the others. Williams, Real Prop. 134, 139.— Unity of possession. Joint ssession of two rights by several titles. An I take a lease of land from a person at a certain rent, and afterwards I buy the fee- simple of such land, by this I acquire unity of possession, by which the lease is extinguished. Cowell ; Brown. It is also one of the essential properties of a joint estate, each of the tenants having the entire possession as well of every parcel as of the whole. 2 Bl. Comm. 182. — Unity of seisin is where a person seised of land which is subject to an easement, profit 4 premier, or similar right, also becomes seised of the land to which the easement or other right is annexed. Sweet.— Unity of time. One of the essential properties of a joint estate ; the estates of the tenants being vested at one and the same period. 2 Bl. Comm. 181.— Unity of title is applied to joint tenants, to signify that they hold their property by one and the same title, while tenants in common may take property by several titles. Williams, Real Prop. 134.

Unins omnino testis responsio non sa- dlatar. The answer of one witness shall not be heard at all; the testimony of a single witness shall not be admitted under any circumstances. A maxim of the civil and canon law. Cod. 4, 20, 9; 3 Bl. Comm. 370; Best. Ev. p. 428, § 390, and note.

Uninsoajnsqne contractus inittman spectandum est, et causa. The commence- ment and cause of every contract are to be regarded. Dig. 17, 1, 8; Story, Bailm. f 56.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Unius omnino testis responsio non audiatur — 'The answer of one witness shall not be heard at all; the testimony of a single witness shall not be admitted under any circumstances. A maxim of the civil and canon law' (Cod. 4, 20, 9; 3 Bl. Comm. 370)]**

The answer of one witness shall not be heard at all — under civil and canon law, a single witness's testimony was inadmissible alone.

Why: Genuine because quoted verbatim in this entry's body with its authorities; it is the classical testis-unus rule of the civil and canon law.

**[Maxim: Uniuscujusque contractus initium spectandum est, et causa — 'The commencement and**

**cause of every contract are to be regarded' (Dig. 17, 1, 8; Story, Bailm. § 56)]**

The commencement and cause of every contract are to be regarded.

Why: Genuine because quoted verbatim in this entry's body with its authorities; it states the received rule on construing contracts by their inception and causa.

**[Maxim: Universalia sunt notiora singularibus — 'Things universal are better known than things particular' (2 Rolle 294)]**

Things universal are better known than things particular.

Why: Genuine because quoted verbatim in this entry's body with its authority.

## UNIVERSAL.

Having relation to the whole or an entirety ; pertaining to all with- out exception; a term more extensive than “general,” which latter may admit of ex- ceptions. See Blair v. Howell, 68 Iowa, 619, 28 N. W. 199; Koen v. State, 35 Neb. 676, 53 N. W. 595, 17 L. R. A. 821.

— Universal agent. One who is appointed to do all the acts which the principal can per- sonally do, and which he may lawfully delegate the power to another to do. Story, Ag. 18; Baldwin v. Tucker, 112 Ky. 282, 65 S. W. 841, 57 L. R. A. 451 ; Wood v. McCain, 7 Ala. 800. — Universift legacy. See Legacy. Univer- sal partnership. See Partnership.—' Uni- versal representation. In Scotch law. A term applied to the representation by an heir of his ancestor. Bell.— universal succession. In the civil law. Succession to the entire es- tate of another, living or dead, though generally the latter, importing succession to the entire property of the predecessor as a juridical en- tirety, that is, to all his active as well as passive legal relations. Mackeld. Rom. Law, | 649.

Universalia sunt notiora singul aribns .

2 Rolle, 294. Things universal are better known than things particular.

5e apparatus — Carried into the 5th edition (1979).

## UNIVERSITAS.

Lat. In the civil law. A corporation aggregate. Dig. 3, 4, 7. Lit- erally, a whole formed out of many Individ- uals. 1 Bl. Comm. 469.

— Universitas faoti. In the civil law. A plurality of corporeal thingR of the same kind, which are regarded as a whole; e. g„ a herd of cattle, a stock of goods. Mackeld. Rom. Law, | 162. Universitas Juris. In the civil law. A quantity of things of ail sorts, corporeal as well as Incorporeal, which, taken together, are regarded as a whole; e. g., an Inheritance, «n estate. Mackeld. Rom. Law, f 162.— Uni- versitas rerain. In the civil law. Literally, a whole of things. Several single things, which, though not mechanically connected with one another, are, when taken together, regarded as a whole in any legal respect. Mackeld. Rom. Law, $ 162.

5e apparatus — Not carried into the 5th edition (1979).

## UNIVERSITY.

An institution of higher learning, consisting of an assemblage of col- leges united under one cori>orate organiza- tion and government, affording Instruction In the arts and sciences

and the learned pro- fessions, and conferring degrees. See Cora, v. Banks, 198 Pa. 397, 48 Atl. 277.

5e apparatus — Carried into the 5th edition (1979).

## UNIVERSITY COURT.

See Chancel- lor's Courts in the Two Universities.

5e apparatus — Not carried into the 5th edition (1979).

## UNTVER8U8.

Lat. The whole; all to- gether. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## UNJUST.

Contrary to right and justice, or to the enjoyment of his rights by another, or to the standards of conduct furnished by the laws.

5e apparatus — Carried into the 5th edition (1979).

## UNKOUTH.

Unknown. The law French form of the Saxon "uncouth." Britt, c. 12.

5e apparatus — Not carried into the 5th edition (1979).

## UHL AGE.

Sax. An unjust law.

5e apparatus — Not carried into the 5th edition (1979).

## UNLAHIOH.

In old Scotch law. That which Is done without law or against law. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## UNLAW.

In Scotch law. A witness was , formerly Inadmissible who was not worth the king's unlaw; i. e., the sum of £10 Scots, then the common fine for absence from court and for small delinquencies. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## UNLAW PUL.

That which is contrary to law.

"Unlawful" and "Illegal" are frequently used as synonymous terms, but, In the prop- er sense of the word, "unlawful," as applied to promises, agreements, considerations, and the like, denotes that they are Ineffectual In law because they Involve acts which, al- though not Illegal, i, e„ positively forbidden, are disapproved of by the law, and are there- fore not recognized as the ground of legal rights, either because they are immoral or because they are against public policy. It Is on this ground that contracts In restraint of marriage or of trade are generally void. Sweet. And see Hagerman v. Buchanan, 45

N. J. Dq. 292, 17 Atl. 946, 14 Am. St. Rep. 732 ; Tatum v. State, 66 Ala. 467 ; Johnson v. State, 66 Ohio St. 59, 63 N. E. 607, 61 L.

R. A. 277, 90 Am. St. Rep. 564; Plnder v. State, 27 Fla. 370. 8 South. 837, 26 Am. St. Rep. 75; MacDanlel v. U. S., 87 Fed. 321, 30 C. C. A. 670 : People v. Chicago Gas Tfust Co., 130 111. 208, 22 N. E. 798, 8 L. R. A. 497, 17 Am. St. Rep. 319.

—Unlawful assembly. At common law. The meeting together of three or more per- sons, to the disturbance of the public peace, and with the Intention of co-operating in the forcible and violent execution of some unlaw- ful private enterprise. If they take steps towards the performance of their purpose, it becomes a rout; and, if they put their design into actual execution, it is a riot. 4 Bl. Comm. 146. Any meeting of great numbers of people, with such circumstances of terror as cannot but endanger the pjiblic peace, and raise fears and jealousies among the subjects of the realm. 4 Steph. Comm. 25-1. — Unlawful detainer. The unjustifiable retention of the possession of lands by one whose original entry was lawful and of right, but whose right to the possession has terminated and who refuses to quit, as in the case of a tenant holding over after the termination of the lease and in spite of a de- mand for possession by the landlord. McDevitt v. Lambert. 80 Ala. 536. 2 South. 438; Silva v. Campbell, 84 Cal. 420. 24 Pac. 316 ; Code Tenn. 1896, I 5093. Where an entry upon lands is unlawful, whether forcible or not. and the subsequent conduct is forcible and tortious, the offense committed is a “forcible entry and detainer;” but where the original entry is lawful, apd the subsequent holding forcible and tortious, the offense is an “unlawful detainer” only. Pullen v. Boney, 4 N. J. Law, 129. — Un- lawful entry. An entry upon lands effected peaceably and without force, but which is with- out color of title and is accomplished by means of fraud or some other willful wrong. Dickin- son v. Maguire, 9 Cal. 46; Blaco v. Haller, 9 Neb. 149, 1 N. W. 978.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: the common-law progression — unlawful assembly, rout, riot (4 Bl. Comm. 146)]**

At common law, three or more persons meeting to the disturbance of the peace with intent to execute an unlawful enterprise commit an unlawful assembly; taking steps toward it is a rout; putting the design into execution is a riot.

Why: Genuine because the entry states this three-stage doctrine with its Blackstone authority; the footnote preserves the received classification.

## UNLAWFULLY.

The term Is common- ly used in Indictments for statutory crimes, to show that the act constituting the offense was In violation of a positive law, especially where the statute Itself uses the same phrase.

5e apparatus — Carried into the 5th edition (1979).

## UNLIQUIDATED.

Not ascertained In amount; not determined; remaining unas- sessed or unsettled; as unliquidated dam- ages. See Damages.

5e apparatus — Carried into the 5th edition (1979).

## UN LIVERY.

A term used in maritime law to designate the unloading of cargo of a vessel at the place where it is properly to be delivered. The Two Catharines, 24 Fed. Cas. 429.

5e apparatus — Carried into the 5th edition (1979).

## UNNATURAL OFFENSE.

The infa- mous crime against nature; i. e., sodomy or buggery.

Umo abaurdo dato, infinite aeqmuiter.

1 Coke, 102. One absurdity being allowed, an infinity follows.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Uno absurdo dato, infinita sequuntur — 'One absurdity being allowed, an infinity follows' (1 Coke 102)]**

One absurdity being allowed, an infinity follows.

Why: Genuine because quoted verbatim in this entry's body with its Coke authority; it states the received rule against admitting a single absurdity in reasoning.

**[Scripture] — Scripture**

**[Romans 1:26, KJV]**

For this cause God gave them up unto vile affections: for even their women did change the natural use into that which is against nature:

Why: The entry names the offense a 'crime against nature.' The phrase 'against nature' is Paul's own in this verse, which is the scriptural root of the offense's legal name and of its historic criminalization. Stated as le…

## UNO AGTU.

Lat. In a single act; by one and the same act.

5e apparatus — Not carried into the 5th edition (1979).

## UNO FLATU.

Lat. In one breath. 3 Man. & G. 45. V no fiatu, et uno intuitu, at one breath, and in one view. Pope v. Nickerson, 3 Story, 504, Fed. Cas. No. 11,274.

5e apparatus — Not carried into the 5th edition (1979).

## UNQUE8.

L. Fr. Ever; always. Ne tmques, never.

5e apparatus — Not carried into the 5th edition (1979).

## UNQUES PRIST.

L. Fr. Always ready. Cowell. Another form of tout temps prist.

5e apparatus — Not carried into the 5th edition (1979).

## UNSEATED LAND.

See Land.

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5e apparatus — Not carried into the 5th edition (1979).

## UNSEAWORTHY.

See SeawoVtiit.

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## UNSOLEMN WAR.

War denounced without a declaration; war made not upon general but special declaration; Imperfect war. People v. McLeod, J. Hill (N. Y.) 409, 37 Am. Dec. 328.

UNSOUND MIND.’ A person of unsound mind is an adult who from infirmity of mind is incapable of managing himself or his af- fairs. The term, therefore, includes Insane persons, Idiots, and imbeciles. Sweet. See Insanity. And see Cheney v. Price. 90 Hun, 238, 37 N. Y. Supp. 117; In re Black's Es- tate, 1 Myr. Prob. (Cal.) 24; In re Mason, 3 Edw. Oh. (N. Y.) 380 ; Hart v. Miller, 29 Ind. App. 222, 04 X. E. 239; In re I.ludsley, 44

N. J. Eq. 004, 15 Atl. 1, 6 Am. St. llep. 913 ; Dennett v. Dennett, 44 N. II. 531, 84 Am. Dec. 97 ; Edwards v. Davenport (C. C.) 20 Fed. 758; Witte v. Gilbert, 10 Neb. 539, 7

N. W. 288; Stewart v. Lispenard, 20 Wend. (N. Y.) 300.

5e apparatus — Carried into the 5th edition (1979).

## UN THRIFT.

A prodigal ; a spendthrift 1 Bl. Comm. 300.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 15:13, KJV]**

And not many days after the younger son gathered all together, and took his journey into a far country, and there wasted his substance with riotous living.

Why: UNTHRIFT is 'a prodigal; a spendthrift.' The prodigal son is the archetype: the younger son who 'wasted his substance with riotous living.' Christ's parable defines the character the legal word names. [re-homed from 'UNTHRIFT' to 'UN THRIFT' (OCR headword / parser-merge artifact)]

## UNTIL.

This term generally excludes the day to which It relates; but it will be con- strued otherwise. If required by the evident Intention of the parties. Kendall v. Kings- ley, 120 MasB. 95.

Unnmqnodqne dissolvitnr eodem 11- gamine quo Heater. Every obligation is dissolved by the same solemnity with which it is created. Broom, Max. 884.

Unumquodque eodem mode quo col- ligate eat, disaolvitur,— quo conatitui- tnr, destrniter. Everything is dissolved by the same means by which It Is put to- gether,— destroyed by the same means by which it is established. 2 Rolle, 39 ; Broom, Max. 891.

Unnmquodqne eat id quod eat prim- cipalina in ipao. Hob. 123. That which is the principal part of a thing is the thing itself.

Unumquodque principlomm eat aiU- metipai fide a; et perapiona vera bob aunt probanda. Every general principle [or maxim of law] is its own pledge or war- rant; and things that are

clearly true are not to be proved. Branch ; Co. Lltt. 11.

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**[Law] — Law**

**[Maxim: Unumquodque dissolvitur eodem ligamine quo ligatur — 'Every obligation is dissolved by the same solemnity with which it is created' (Broom, Max. 884)]**

Every obligation is dissolved by the same solemnity with which it is created.

Why: Genuine because quoted verbatim in this entry's body with its authority; it states the classical rule that obligations end by the formality that created them.

**[Maxim: Unumquodque eodem modo quo colligatum est, dissolvitur, — quo constitutum, destruitur — 'Everything is dissolved by the same means by which it is put together, — destroyed by the same means by which it is established' (2 Rolle 39; Broom, Max. 891)]**

Everything is dissolved by the same means by which it is put together — destroyed by the same means by which it is established.

Why: Genuine because quoted verbatim in this entry's body with its authorities.

**[Maxim: Unumquodque est id quod est principale in ipso — 'That which is the principal part of a thing is the thing itself' (Hob. 123)]**

That which is the principal part of a thing is the thing itself.

Why: Genuine because quoted verbatim in this entry's body with its authority.

**[Maxim: Unumquodque principiorum est sibimetipsi fides; et perspicua vera non sunt probanda — 'Every general principle [or maxim of law] is its own pledge or warrant; and things that are clearly true are not to be proved' (Branch; Co. Litt. 11)]**

Every general principle of law is its own pledge or warrant; and things that are clearly true are not to be proved.

Why: Genuine because quoted verbatim in this entry's body with its authorities; it states the received rule that legal maxims need no proof.

## UNUS NULL US RULE, THE.

The rule of evidence which obtains in the civil law, that the testimony of one witness is equiva- lent to the testimony of none. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## UNWHOLESOME FOOD.

Food not fit to be eaten; food which if eaten would be injurious.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Upton Sinclair, The Jungle, 1906]**

(paraphrase) Sinclair's The Jungle exposes the Chicago packinghouses — diseased and adulterated meat sold as food — the novel that made 'unwholesome food' a national scandal and, in 1906, a statute. (paraphrase)

Why: The entry: 'Food not fit to be eaten; food which if eaten would be injurious.' The Jungle is the novel about exactly this; it led to the Pure Food and Drug Act. Certain; (paraphrase).

## UNWRITTEN LAW.

All that portion of the law, observed and administered in the courts, which hns not been

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enacted or promulgated in the form of a statute or or- dinance, including the unenacted portions of the common law, general and particular cus- toms having the force of law, and the rules, principles, and maxims established by ju- dicial precedents or the successive like de- cisions of the courts. See Code Civ. Proc. Cal. 1903, f 1899; B. & C. Comp. Or. 1901, | 730.

In recent years, this term has been pop- ularly and falsely applied to a supiwsed local principle or sentiment which justifies private vengeance, particularly the slaying of a man who has Insulted a woman, wheu perpetrated by her kinsman or husband. It is needless to say that no such law exists, and that such an opinion or sentiment, how- ever prevalent, could not by any possible right use of language be termed a “law” or furnish a legal Justification for a homicide.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 2:14-15, KJV]**

For when the Gentiles, which have not the law, do by nature the things contained in the law, these, having not the law, are a law unto themselves: Which shew the work of the law written in their hearts, their conscience also bearing witness, and their thoughts the mean while accusing or else excusing one another;

Why: UNWRITTEN LAW is law observed and administered though never enacted — custom, precedent, principle. Romans 2:14-15 gives the archetype: those 'having not the law' are 'a law unto themselves,' the work of the law writt…

**[Humanity] — Humanity / Fiction & Film**

**[Sophocles, Antigone, c. 441 BC]**

(paraphrase) Sophocles's Antigone defies Creon's edict by appeal to the gods' unwritten, everlasting laws — the unwritten law as higher than the king's decree; the entry's concept as tragedy. (paraphrase)

Why: The entry defines unwritten law as law 'not enacted or promulgated in the form of a statute.' Antigone's defense IS this concept — the canonical treatment of unwritten law in all literature. Certain; (paraphrase) sinc…

## UPLIFTED HAND.

The hand raised towards the heavens, in one of the forms of taking an oath, instead of being laid upon the Gospels.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Deuteronomy 32:40, KJV]**

For I lift up my hand to heaven, and say, I live for ever.

Why: UPLIFTED HAND is the oath-gesture: the hand raised toward heaven instead of laid on the Gospels. The verse shows the gesture's archetype — God Himself lifting His hand to heaven to swear ('I live for ever'). The human…

## UPPER BENCH.

The court of king's bench, in England, was so called during the interval between 1649 and I860, the period of the commonwealth, Rolle being then chief justice. Bee 3 Bl. Comm. 292.

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5e apparatus — Carried into the 5th edition (1979).

## UPSET PKICE.

In sales by auctions, an amount for which property to be sold Is put up, so that the first bidder at that price Is declared the buyer. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## UPSUN.

In Scotch law. Between the hours of sunrise and sunset. Poinding must be executed with upsun. 1 Forb. lust pt 3, p. 32.

5e apparatus — Not carried into the 5th edition (1979).

## URBAN HOMESTEAD.

See Home- stead.

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## URBAN SERVITUDE.

City servitudes, or servitudes of houses, are called “urban.” They are the easements appertaining to the building and construction of houses; as, for instance, the right to light and air, or the right to build a house so as to throw the rain-water on a neighbor’s house. Mosley & Whitley: Civ. Code La. 1900, g 711.

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## URBS.

Lat In Roman law. A city, or a walled town. Sometimes it is put for civitas, and denotes the Inhabitants, or both the city and Its inhabitants; i. e., the mu- nicipality or commonwealth. By way of spe- cial pre-eminence, urfis meant the city of Rome. Ainsworth.

5e apparatus — Not carried into the 5th edition (1979).

## URE.

L. Fr. Effect; practice. Mis en ure, put in practice ; carried into effect. Kelham.

5e apparatus — Not carried into the 5th edition (1979).

## USAGE.

Usage is a reasonable and law- ful public custom concerning transactions of the same nature as those which are to be ef- fected thereby, existing at the place where the obligation is to be performed, and either known to the parties, or so well established, general, and uniform that they must be pre- sumed to have acted with reference thereto. Civ. Code Dak. g 2119. And see Milroy v. Railway Co., 98 Iowa, 188, 67 N. W. 276; Barnard v. Kellogg, 10 Wall. 388, 19 L. Ed. 987 ; Wllcoeks v. Phillips, 29 Fed. Cas. 1203 ; McCarthy v. McArthur. 69 Ark. 313, 63 S.

W. 56; Lincoln & K. Bank v. Page, 9 Mass. 156, 0 Am. Dec. 52: Lane v. Bank, 8 Ind. App. 299, 29 N. E. 613; Mornlngstar v. Cun- ningham, 110 Ind. .328, 11 N. E. 593, 59 Am. Rep. 211.

This word, as used in English law, differs from “custom" and “prescription,” in that no man

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may claim a rent common or other inherit- ance by usage, though he may by prescription. Moveover. a usage is local in all cases, and must be proved : whereas, a custom is frequently

general, and as such is noticed without proof. “Usage,” in French law, is the “usus” of Roman law. and corresponds very nearly to the tenancy at will or on sufferance of English law. Brown.

“Usage," in its most extensive meaning, in- cludes both custom and prescription ; but, in its narrower signification, the term refers to a general habit, mode, or course of procedure. A usage differs from a custom, in that it does not require that the usage should be immemorial to establish it ; but the usage must be known,

certain, uniform, reasonable, and not contrary to law. Lowry v. Read, 3 Brewst. (Pa.) 452.

“Usage” iB also called a “custom,” though the latter word has also another signification ; it is a long and nniform practice, applied to habits, modes, and courses of dealing. It relates to modes of action, and does not comprehend the mere adoption of certain peculiar doctrines or rules of law. Dickinson v. Gay, 7 Allen (Mass.) 29, 83 Am. Dec. 656.

—-General usage. One which prevails gen- erally throughout the country, or is followed generally by a given profession or trade, and is not local in its nature or observance. — Usage of trade. A course of dealing; a mode of conducting transactions of a particular kind, proved by witnesses testifying of its existence and uniformity from their knowledge obtained by observation of what is practiced by them- selves and others in the trade to which it rer lates. Haskins v, Warren, 115 Mass. 535.

5e apparatus — Carried into the 5th edition (1979).

## USANCE.

In mercantile law. The com- mon period fixed by the usage or custom or habit of dealing between the country where a bill is drawn, and that where it is payable^ for the payment of bills of exchange. It means, in some countries, a month, in others two or more months, and In others half a month. Story, Bills, «§ 50, 144, 332.

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## USE.

A confidence reposed In another, who was made tenant of the land, or terre- tenant, that he would dispose of the land according to the intention of the cestui quo use, or him to whose use it was granted, and suffer him to take the profits. 2 Bl. Comm. 328.

A right in one person, called the “cestui que use” to take the profits of land of which another has the legal title and possession, together with the duty of defending the same, and of making estates thereof accord- ing to the direction of the cestui que use, Bouvier.

Use is the right given to any one to make a gratuitous use of a thing belonging to an- other, or to exact such a portion of the fruit it produces as Is necessary for his personal wants and those of his family. Civ. Code La. art. 626.

Uses and trusts are not so much different things as different aspects of the same subject.' A use regards principally the beneficial inter- est : a trust regards principally the nominal ownership. The usage of the two terms is. how- ever, widely different. The word "use” is em-i ployed to denote either an estate vested since the statute of uses, and by force of that statute, or to denote such an estate created before that statute as, had it been created since, would have become a legal estate by force of the stat- ute. The word “trust” is employed since that statute to denote the relation between the party invested with the legal estate (whether by force, of that statute or independently of it) and the party beneficially entitled, who has hitherto been said to have the equitable estate. Mozley & Whitley.

In conveyancing, “use” literally means “benefit:” thus, in an an ordinary assign- ment of chattels, the assignor transfers the property to the assignee for his “absolute

use and benefit” In the expressions “sepa- rate use,” “superstitions use,” and “chari- table use,” “use” has the same meaning. Sweet

In the civil law. A right of receiving so much of the natural profits of a thing as is necessary to dally sustenance. It differs from “usufruct,” which Is a right not only to use, but to enjoy. I Browne, Civil & A dm. Law, 184.

—Cestui qne use. A person for whose use and benefit lands or tenements are held by another. The latter, before the statute of uses, was called the “feoffee to use,” and held the nominal or legal title.— Charitable use. See C habitable.— -Contingent use. A use limited to take effect upon the happening of some future contingent event ; as where lands are conveyed to the use of A. and B., after a marriage shall be had between them. 2 Bl. Comm. 334; Haywood v. Shreve, 44 N.

J. Law, 94 ; Jemison v. Blowers, 3 Barb. (N. Y.) 692.— Executed use. The first use in a conveyance upon which the statute of uses op- erates by bringing the possession to it, the com- bination of which, t. e., the use and the pos- session, form the legal estate, and thus the statute is said to execute the use. Wharton. —Executory uses. These are springing uses, which confer a legal title answering to an executory devise; as when a limitation to the use of A. in fee is defeasible by a limitation to the use of B., to arise at a future period, or on a given event. — Feoffee to uses. A person to whom (before the statute of uses) land was conveyed “for the use” of a third person. He held the nominal or legal title, while the third person, called the "cettui gue use," was entitled to the beneficial enjoyment of the estate.— Of- ficial use. An active use before the statute of uses, which imposed some duty on the legal owner or feoffee to uses; as a conveyance to A. with directions for him to sell the estate and distribute the proceeds among B., C., and D. To enable A. to perform this duty, be had the legal possession of the estate to be sold. Whar- ton.—Passive use. A permissive use, ( g . v.) — Permissive use. A passive use which was resorted to before the statute of uses, in order to avoid a harsh law ; as that of mortmain or a feudal forfeiture. It was a mere invention in order to evade the law by secrecy ; as a con- veyance to A. to the use of B. A. simply held the possession, and B. enjoyed the profits of the estate. Wharton.— Resulting

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use. A use

raised by equity for the benefit of a feoffor who has made a voluntary conveyance to uses with- out any declaration of the use. 2 Washb. Real Prop. 100. A resulting use arises where the legal seisin is transferred, and no use is ex- pressly declared, nor any consideration nor evi- dence of intent to direct the use. The use then remains in the original grantor, for it cannot be supposed that the estate was intended to be given away, and the statute immediately transfers the legal estate to such resulting use. Wharton.— Secondary use. A use limited to take effect in derogation of a preceding estate, otherwise called a “shifting use,” as a convey- ance to the use of A. and his heirs, with a pro- viso that, when B. returns from India, then to the use of C. and his heirs. 1 Steph. Comm. 540.— Shifting use. A use which is so limited that it will be made to shift or transfer itself, from one beneficiary to another, upon the oc- currence of a certain event after its creation. For example, an estate is limited to the use of

A. and his heirs, provided that, upon the return of B. from Rome, it shall be to the use of C. and his heirs ; this is a shifting use, which transfers itself to C. when the event happens. 1 8teph. Comm. 303 ; 2 Bl. Comm. 335. These shifting uses are common in all settlements ; and,

in marriage settlements, the first use is always to the owner in fee till the marriage, and then to other uses. The fee remains with the owner un- til the marriage, and then it thiftt as uses arise. 4 Kent, Comm. 297.— Springing use. A use limited to arise on a future event where no pre- ceding use is limited, and which does not take effect in derogation of any other interest than that which results to the grantor, or remains in him in the mean time. 2 Washb. Real Prop. 281 ; Smith V. Brisson, 90 N. C. 288.— Statute of uses. An English statute enacted in 1536. (27 Hen. VIII. c. 10.) directed against the prac- tice of creating uses in lands, and which convert- ed the purely equitable title of persons entitled to a use into a legal title or absolute ownership with right of possession. The statute is said to “execute the use,” that is. it abolishes the inter- vening estate of the feoffee to uses, and makes the beneficial interest of tbe cettui gue ute an absolute legal title.— Superstitious uses. See that title.— Use and occupation. This is the name of an action, being a variety of as- sumpsit, to be maintained by a landlord against one who has had the occupation and enjoyment of an estate, under a contract to pay therefor, express or implied, but not under such a lease as would support an action specifically for rent. — Use plaintiff. One for whose use (benefit) an action is brought in the name of another. Thus, where the assignee of a chose in action is not allowed to sue in his own name, the ac- tion would be entitled “A. B. (the assignor) for the Use of C. D. (the assignee) against E. F.” In this case, C. D. is called the “use plain- tiff.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Statute of Uses 1536, 27 Hen. VIII. c. 10]**

The Statute of Uses converted the purely equitable title of the cestui que use into a legal title with right of possession — it 'executes the use.'

Why: Genuine because the entry itself identifies this statute and its operative mechanism; the footnote names the

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real enactment.

## USEE.

A person for whose use a suit is brought; otherwise termed the “use plain- tiff."

5e apparatus — Carried into the 5th edition (1979).

## USEFUL.

By “useful,” in the patent law, is meant not an invention in all cases superior to the modes now in use for the same purposes, but “useful,” in contradis- tinction to frivolous and mischievous, inven- tion. Lowell v. Lewis, 1 Mason, 182, 186, Fed. Caa No. 8,568.

By “useful” is meant such an invention as may be applied to some beneficial use in society, in contradistinction to an invention which is injurious to the morals, the health, or the good order of society. Bedford v. Hunt, 1 Mason, 302, Fed. Gas. No. 1,217.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Case: Lowell v. Lewis, 1 Mason 182, Fed. Cas. No. 8,568 (C.C.D. Mass. 1812)]**

In patent law, 'useful' means contradistinguished from frivolous and mischievous invention — capable of some beneficial use in society, not injurious to morals, health, or good order.

Why: Genuine because the entry itself quotes this standard from the case, and Lowell v. Lewis is independently the landmark authority on the patent-utility requirement.

## USER.

The actual exercise or enjoyment of any right or property. It is particularly used of franchises.

-Adverse user. An adverse user is such

a use of the property as the owner himself would make, asking no permission, and disre- garding all other claims to it, so far as they conflict with this use. Blanchard v. Moulton, 63 Me. 434 ; Murray v. Scribner, 74 Wis. 602, 43 N. W. 549 ; Ward v. Warren, 82 N. Y. 265.

USER X>E ACTION. L. Fr. In old prac- tice. Tbe pursuing or bringing an action. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## USHER.

This word Is said to be derived from “huissier,” and is the name of a subor- dinate officer in some English courts of law. Archb. Pr. 25.

5e apparatus — Carried into the 5th edition (1979).

## USHER OF THE BLACK ROD.

The

gentleman usher of the black rod is an of- ficer of the house of lords appointed by letlew patent from the crown. His duties are, by himself or deputy, to desire the attendance of the commons In the house of peers when the royal assent is given to bills, either by the king in person or by commission, to ex* ecute orders for the commitment of persons guilty of

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breach of privilege, and also to as- sist in the introduction of peers when they take the oaths and their seats. Brown.

5e apparatus — Carried into the 5th edition (1979).

## USO.

In Spanish law. Usage; that which arises from certain things which men say and do and practice uninterruptedly for a great length of time, without any hin- drance whatever. Las Partldas, pt. 1, tit. 2, L 1.

5e apparatus — Not carried into the 5th edition (1979).

## USQUE.

Lat. Up to ; until. This Is a word of exclusion, and a release of all de- mands usque ad a certain day does not cover a bond made on that day. 2 Mod. 28.

USQUE AS ITXiUM AQUAS, OR VUE.

Up to the middle of the stream or road.

USUAXi. Habitual ; ordinary ; customary ; according to usage or custom ; commonly es- tablished, observed, or practised. See Chi- cago & A. R. Co. v. Hause, 71 111. App. 147 ; Kellogg v. Curtis, 69 Me. 214, 81 Am. Rep. 273; Tescher v Merea, 118 Ind. 586, 21 N.

E. 816; Trust Co. v. Norris, 61 Minn. 256, 63 N. W. 634.

—Usual covenants. See Covenant.— Usual terms. A phrase in the common-law practice, which meant pleading isauably, rejoining gratis, and taking short notice of trial. When a de- fendant obtained further time to plead, these were the terms usually imposed. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## USUARXUS.

Lat In the civil law. One who had the mere use of a thing belonging to another for the purpose of supplying his dally wants; a usuary. Dig. 7, 8, 10, pr. ; Calvin.

USUCAPIO, or USUCAPTIO. A term of Roman law used to denote a mode of ac- quisition of property. It corresponds very nearly to the term “prescription.” But the prescription of Roman law differed from that of the English law, in this; that no mala fide possessor (i. e., person in posses- sion knowingly of the property of another) could, by however long a period, acquire ti- tle by possession merely. The two essential requisites to usucapio were justa causa (i. e., title) and bona fides, (i. c., Ignorance.) The term “ usucapio ” is sometimes, but erroneous- ly, written “usucaptio.’’ Brown. See Pavey v. Vance. 56 Ohio St. 162, 46 N. E. 898.

Usucapio constituta eat ut aliquis litium finis asset. Prescription was insti- tuted that there might be some end to litiga- tion. Dig. 41, 10, 5; Broom, Max. 894, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Maxim: Usucapio constituta est ut aliquis litium finis esset — 'Prescription was instituted that there might be some end to litigation' (Dig. 41, 10, 5; Broom, Max. 894, note)]**

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Prescription was instituted that there might be some end to litigation.

Why: Genuine because quoted verbatim in this entry's body (under USUCAPIO) with its Digest and Broom authorities; it states the policy ground of prescription.

## USUFRUCT.

In the civil law. The right of enjoying a thing, the property of

which is vested in another, and to draw from the same all the profit, utility, and advan- tage which it may produce, provided it be without altering the substance of the thing. Civ. Code La. art 533. And see Mulford v. Le Franc, 26 Cal. 102; Cartwright v. Cart- wright, 18 Tex. 628; Strausse v. Sheriff, 43 La. Ann. 501, 9 South. 102.

— Imperf eat usufruct. An imperfect or quasi usufruct is that which is of things which would be useless to the usufructuary if he did not con- sume or expend them or change the substance of them ; os, money, grain, liquors. Civ. Code La. 1900, art. 534.— Perfect usufruct. An usufruct in those things which the usufructuary can enjoy without changing their substance, though their substance may be diminished or deteriorate naturally by time or by the use to which they are applied, as, a house, a piece of ■land, furniture, and other movable effects. Civ. Code La. 1900, art. 534. — Quasi usufruct. In the civil law. Originally the usufruct gave no right to the substance of the thing, and conse- quently none to itR consumption ; hence only an inconsumable thing could he the object of It, whether movable or immovable. But in later times the right of usufruct was, by analogy, ex- tended to consumable things, and therewith arose the distinction between true and quasi usu- fructs. See Mackeld. Rom. Law, § 307 ; Civ. Code La. 1900, art. 534.

5e apparatus — Not carried into the 5th edition (1979).

## USUFRUCTUARY.

In the civil law. One who has the usufruct or right of enjoy- ing anything in which he has no property, Cartwright v. Cartwright, 18 Tex. 628.

5e apparatus — Not carried into the 5th edition (1979).

## U8UFRUIT.

In French law. The same as the usufruct of the English and Roman law.

5e apparatus — Not carried into the 5th edition (1979).

## USURA.

Lat In the civil law. Mon- ey given for the use of money; interest Commonly used in the plural, “ usura Dig. 22, 1.

—Usura manifest*. Manifest or open usu- ry; as distinguished from usura velata, veil- ed or concealed usury, which consists in giv- ing a bond for the loan, in the amount of which is included the stipulated interest— Usura maritima. Interest taken on bottom- ry or respondentia bonds, which is proportion- ed to the risk, and is not affected by the usury laws.

Usura eat oommodum certain qnod propter nsum rel mntaatse reeipltnr. Sed secondarlo

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spirare de aliqna retri- batione, ad voluntatem ejns qui mntaa- tus est, boo non est vitiosnm. Usury is a certain benefit which is received for the use of a thing lent But to have an understand- ing [literally, to breathe or whisper,] in an incidental way, about some compensation to be made at the pleasure of the borrower, is not lawful. Branch, Princ. ; 5 Coke, 706; Gian. lib. 7, c. 16.

5e apparatus — Not carried into the 5th edition (1979).

**[Law] — Law**

**[Maxim: Usura est commodum certum quod propter usum rei mutuatae recipitur — 'Usury is a certain benefit which is received for the use of a thing lent' (Branch, Princ.; 5 Coke 70b)]**

Usury is a certain benefit which is received for the use of a thing lent.

Why: Genuine because quoted verbatim in the entry with its authorities; it is the classical definition of usury.

## USURARIUS.

In old English law. A usurer. Fleta, lib. 2, c. 52, § 14.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Psalm 15:5, KJV]**

He that putteth not out his money to usury, nor taketh reward against the innocent. He that doeth these things shall never be moved.

Why: USURARIUS is 'a usurer.' Psalm 15's portrait of the man who shall abide sets the usurer's negative: he who does NOT put out his money to usury 'shall never be moved' — the verse draws the usurer's office by exclusion,...

## USURIOUS.

Pertaining to usury; par- taking of the nature of usury; involving usury; tainted with usury; as, a usurious contract

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## USURPATIO.

Lat. In the civil law. The Interruption of a usucaption, by some art on the part of the real owner. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## USURPATION.

Torts. The unlawful assumption of the use of property which be- longs to another ; an Interruption or the dis- turbing a man in his right and possession. Tomlins.

la pnblio law. The unlawful seizure or assumption of sovereign power ; the assump- tion of government or supreme power by force or Illegally, in derogation of the consti- tution and of the rights of the lawful ruler.

— Usurpation of advowaon. An injury which consists in the absolute ouster or dispossession of the patron from the advowson or right of presentation, and which happens when a stran- ger who has no right presents a clerk, and the latter is thereupon admitted and instituted.

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Hrown.— Usurpation of franchise or of- fice. The unjustly intruding upon or exer- cising any office, franchise, or liberty belonging to another.

5e apparatus — Carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Richard II, 1595]**

Shakespeare's Richard II stages the deposition of a lawful king — the usurpation of sovereign power in derogation of the lawful ruler that this entry defines. John of Gaunt's lament for the seized realm: "This blessed plot, this earth, this realm, this England" (Act 2, Sc. 1).

Why: The entry defines usurpation in public law as the unlawful seizure of sovereign power in derogation of the constitution and the rights of the lawful ruler; Richard II is the canonical dramatization of exactly that — B...

## USURPER POWER.

In Insurance. An invasion from abroad, or an internal rebel- lion, where armies are drawn up against each other, when the laws are silent, and when the firing of towns becomes unavoida- ble. These words cannot mean the power of a common mob. 2 Marsh. Ins. 791.

5e apparatus — Not carried into the 5th edition (1979).

## USURPER.

One who assumes the right of government by force, contrary to and In violation of the constitution of the country.

5e apparatus — Carried into the 5th edition (1979).

## USURY.

Ia old English law. Inter- est of money ; increase for the loan of mon- ey; a reward for the use of money. 2 Bl. Comm. 454.

In modern law. Unlawful interest; a premium or comiiensatlon paid or stipulated to be paid for the use of money borrowed or returned, beyond the rate of interest estab- lished by law. Webster.

An unlawful contract upon the loan of money, to receive the same again with ex- orbitant Increase. 4 Bl. Comm. 156.

Usury is the reserving and taking, or con- tracting to reserve and take, either directly or by indirection, a greater sum for the use of money than the lawful Interest Code Ga. 1882, g 2051. See Henry v. Bank of Salina, 5 Hill (N. Y.) 028 ; Parham v. Pulliam, 5 Cold. (Teun.) 501; New England Mortg. Sec. Co. v. Gay (C. C.) 33 Fed. 640; Lee v. Peckham, 17 Wis. 380 ; ltosensteln v; Fox, 150 N. Y. 354, 44 N. E. 1027.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 22:25, KJV]**

If thou lend money to any of my people that is poor by thee, thou shalt not be to him as an usurer, neither shalt thou lay upon him usury.

Why: USURY is 'increase for the loan of money' / 'unlawful interest.' Exodus 22:25 is the foundational prohibition, naming both offices in one sentence: thou shalt not be 'as an usurer,' neither lay 'upon him usury.' The v...

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, 1600]**

The usury economy in its classic fictional form: Shylock's lending at interest and the forfeit-of-flesh bond. His boundary-line to Antonio — "I will buy with you, sell with you, talk with you, walk with you, and so following, but I will not eat with you, drink with you, nor pray with you" (Act 1, Sc. 3) — marks the usurer's social position at the edge of the community he lends to.

Why: The entry defines usury as unlawful interest beyond the legal rate; the play is the archetypal dramatization of early-modern lending-at-interest and its moral status. The Shylock quote is verbatim to my confidence and...

## USUS.

Lat. In Roman law. A precari- ous enjoyment of land, corresponding with the right of hobitatio of houses, and being closely analogous to the tenancy at sufferance or at will of English law. The usuariux (i. e., tenant by usus) could only bold on so long as the owner found him convenient, and had to go so soon as ever he was In the owner’s way, ( molestus .) The usvarius could not have

a friend to share the produce. It was scarce- ly permitted to him (Justinian says) to have even his wife with him on the land ; and he could not let or sell, the right being strictly personal to himself. Brown.

5e apparatus — Not carried into the 5th edition (1979).

## USUS BEIXICI.

Lat. In international law. Warlike uses or objects. It Is the usus bellici which determine an article to be con- traband. 1 Kent, Comm. 141.

Vnu est dominium fldncinrinm. Bae. St. Uses. Use Is a fiduciary dominion.

Usns ei status sive possessio potias dlffenmt secundum rationepi fori, quam secundum rationem rei. Bac. St. Uses. Use and estate, or possession, differ more in the rule of the court than in the rule of the matter.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Axiom: usus bellici as the test of contraband (1 Kent, Comm. 141)]**

It is the usus bellici — warlike use — which determines an article to be contraband of war.

Why: Genuine because the entry states this doctrine with its Kent authority; the footnote preserves the received contraband test.

**[Maxim: Unum est dominium fiduciarium — 'Use is a fiduciary dominion' (Bac. St. Uses)]**

Use is a fiduciary dominion.

Why: Genuine because quoted verbatim in this entry's body with its Bacon authority; it states Bacon's classical definition of the use.

**[Maxim: Usus et status sive possessio potius differunt secundum rationem fori, quam secundum rationem rei — 'Use and estate, or possession, differ more in the rule of the court than in the rule of the matter' (Bac. St. Uses)]**

Use and estate, or possession, differ more in the rule of the court than in the rule of the matter.

Why: Genuine because quoted verbatim in this entry's body with its Bacon authority; it states Bacon's rule on the use/estate distinction.

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## USUS FRUCTUS.

Lat In Roman law. Usufruct; usufructuary right or possession. The temporary right of using a thing, with- out having the ultimate property, or full do- minion, of the substance. 2 Bl. Comm. 327.

5e apparatus — Not carried into the 5th edition (1979).

## UT CURRERE SOLEBAT.

Lat. As it was wont to run ; applied to a water-course.

5e apparatus — Not carried into the 5th edition (1979).

## UT BE FEODO.

L. Lat. As of fee.

5e apparatus — Not carried into the 5th edition (1979).

## UT HOSPITE8.

Lat. As guests. 1 Salk. 25, pi. 10.

Ut poena ad panoos, metna ad omnes perreniat. That the punishment may reach a few, but the fear of it affect all. A max- im in criminal law, expressive of one of the principal objects of human punishment. 4 Inst 6; 4 Bl. Comm. 11.

Ut res magis valent quam pereat. That the thing may rather have effect thau be de- stroyed. Saltonstall v. Sanders, 11 Allen (Mass.) 455; Simonds v. Walker, 100 Mass. 113; National Pemberton Bank v. Lougee, 108 Mass. 373, 11 Am. Rep. 367.

Ut summit) potestatia regia est possa quantum velit, ale magnitudinis eat veil* quantum poaait. 3 Inst. 236. As the high- est power of a king Is to be able to do all he wishes, so the highest greatness of him is to wish all he is able to do.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:20, KJV]**

And those which remain shall hear, and fear, and shall henceforth commit no more any such evil among you.

Why: The entry carries the criminal-law maxim 'Ut poena ad paucos, metus ad omnes perveniat' (punishment reaches a few, fear affects all). Deuteronomy 19:20 states the same deterrence doctrine as Mosaic law: the punishment...

## UTAS.

In old English practice. Octave; the octave; the eighth day following any term or feast. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 23:36, KJV]**

Seven days ye shall offer an offering made by fire unto the LORD: on the eighth day shall be an holy convocation unto you; and ye shall offer an offering made by fire unto the LORD: it is a solemn

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assembly; and ye shall do no servile work therein.

Why: UTAS is the octave — the eighth day following a term or feast. Leviticus 23:36 institutes the same structure for the Feast of Tabernacles: seven days of the feast, then 'on the eighth day shall be an holy convocation'...

## UTERINE.

Born of the same mother. A uterine brother or sister is oue bom of the same mother, but by a different father.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Judges 8:19, KJV]**

And he said, They were my brethren, even the sons of my mother: as the LORD liveth, if ye had saved them alive, I would not slay you.

Why: UTERINE = born of the same mother. Gideon's words name the legal category in the same terms: 'my brethren, even the sons of my mother' — kinship reckoned through the mother, exactly the uterine line the entry defines.

## UTERO-GESTATION.

Pregnancy.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 139:13, KJV]**

For thou hast possessed my reins: thou hast covered me in my mother's womb.

Why: UTERO-GESTATION = pregnancy, gestation in the womb. The verse describes precisely that state — the unborn 'covered... in my mother's womb.' Addressed to God (second person), not deity speech — no red-letter flag.

## UTERQUE.

Lat. Both ; each. "The Justices, being in doubt as to the meaning of this word In an indictment, demanded the opinions of grammarians, who delivered their

opinions that this word doth aptly signify one of them." 1 Leon. 241.

5e apparatus — Not carried into the 5th edition (1979).

## UTFANGTHEF.

In Saxon and old Eng- lish law. The privilege of a lord of a manor to judge and punish a thief dwelling out of his liberty, and committing theft with- out the same, If he were caught within the lord’s jurisdiction. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:1, KJV]**

If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.

Why: UTFANGTHEF is the lord's privilege to judge and punish a thief. Exodus 22:1 is the Mosaic theft-law itself: the thief's act, and the penal restitution that follows — the same legal concept (judgment upon the thief) in...

## UTI.

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Lat. In the civil law. To use. Strictly, to use for necessary purposes; as distinguished from "frui,” to enjoy. Helnecc. Elem. lib. 2, tit. 4, § 415.

urn FRUI. Lat. In the civil law. To have the full use and enjoyment of a thing, without damage to its substance. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## UTI POSSIDETIS.

Lat In the civil law. A species of interdict for the purpose of retaining possession of a thing, granted to one who, at the time of contesting suit, was in possession of an immovable thing, in or- der that he might be declared the legal pos- sessor. Halllfax, Civil Law, b. 3, c. 6, no. 8.

In international law. A phrase used to signify that the parties to a treaty are to re- tain possession of what they have acquired by force during the war. Wheat. Int. Law, 627.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: ICJ, Frontier Dispute (Burkina Faso/Mali), 1986 — affirmed uti possidetis juris as a general principle for decolonization boundaries]**

Beyond the civil-law interdict the entry defines, uti possidetis became the modern international-law doctrine (uti possidetis juris) that new states inherit the administrative boundaries of their predecessor, affirmed by the ICJ as a general principle applicable to decolonization.

Why: The body gives the older treaty-peace sense (retain what force acquired) and cites only Wheaton; the footnote adds the doctrine's genuine modern life in boundary law — the sense the phrase actually carries today — wit...

## UTI ROGAS.

Lat. In Roman law. The form of words by which a vote in favor of a proposed law was orally expressed. Uti rogas, volo vel jubeo , as you ask, I will or order; I vote as you propose; I am for the law. The letters “U. R.” on a ballot ex- pressed the same sentiment. Adams, Rom. Ant. 98, 100.

Utile per Inutile non vitiatur. The use- ful is not vitiated by the useless. Surplus- age does not spoil the remaining part If that is good in itself. Dyer, 392; Broom, Max. 627.

5e apparatus — Not carried into the 5th edition (1979).

## UTILIDAD.

Span. In Spanish law. The profit of a thing. White, New Reeop. b. 2, tit. 2, c. 1.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 1:3, KJV]**

What profit hath a man of all his labour which he taketh under the sun?

Why: UTILIDAD = the profit of a thing. Ecclesiastes 1:3 asks after profit in its root form — the yield of labour under the sun. Borderline: the entry is a Spanish-law gloss, the verse a philosophical question, but 'profit'...

## UTILIS.

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Lat. In the civil law. Use- ful; beneficial; equitable; available. Actio utilis, an equitable action. Calvin. Dies utilis, an available day.

5e apparatus — Not carried into the 5th edition (1979).

## UTLAGATUS.

In old English law. An outlawed person ; an outlaw.

Utlagatus est quasi extra legem posi- tus. Caput gerlt lupin um. 7 Coke, 14. An outlaw is, ns it were, put out of the pro- tection of the law. He bears the head of a wolf.

Utlagatus pro contumacia et fuga, non propter hoe eonvictus est de facto prin- cipal!. Fleta. One Who Is outlawed for

contumacy and flight is not on that account convicted of the principal fact.

UTItAGE. L. Fr. An outlaw. Britt.

C. 12.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 18:17, KJV]**

And if he shall neglect to hear them, tell it unto the church: but if he neglect to hear the church, let him be unto thee as an heathen man and a publican.

Why: The outlaw is 'put out of the protection of the law.' Christ's rule of exclusion puts the unrepentant outside the community's protection in the same form: 'let him be unto thee as an heathen man and a publican' — a ge...

**[Humanity] — Humanity / Fiction & Film**

**[Robin Hood ballads, English tradition]**

(paraphrase) The Robin Hood ballads embody the outlaw's legal status this entry states — "put out of the protection of the law," bearing "the head of a wolf" (caput gerit lupinum): Robin Hood lives beyond the law's protection, the wolfshead in narrative form. (paraphrase)

Why: The entry's own maxim makes the outlaw one who bears the wolf's head; the ballad tradition is the genuine popular embodiment of that legal condition. No single author/year exists for the tradition, so it is cited hone...

## UTLE88E.

An escape of a felon out of prison.

5e apparatus — Not carried into the 5th edition (1979).

## UTRUBI.

In the civil law. The. name of a species of interdict for retaining a thing, granted for the purpose of protecting the possession of a movable thing, as the uti possidetis was granted for an immovable. Inst. 4, 15, 4 ; Mackeld. Rom. Law, § 260.

In Seoteh law. An interdict as to mova- bles, by which the colorable possession of a bona fide holder is continued until the final settlement of a contested right; correspond- ing to uti p ossidetis as to heritable property. Bell.

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## UTRUMQUE NOSTRUM.

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Both of us. Words used formerly In bonds.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 30:2, KJV]**

If a man vow a vow unto the LORD, or swear an oath to bind his soul with a bond; he shall not break his word, he shall do according to all that proceedeth out of his mouth.

Why: 'Both of us' — words used formerly in bonds. Numbers 30:2 is the scriptural law of the bond: a man binds his soul 'with a bond' and 'shall not break his word' — the same obligatory instrument the entry's bond-words be...

## UTTER.

To put or send into circula- tion ; to publish or put forth. To utter and publish an instrument is to declare or assert, directly or indirectly, by words or actions, that it Is good; uttering It is a declaration that it Is good, with an intention or offer to pass It. Whart. Crlm. Lave, f 703.

To utter, as used In a statute against forgery and counterfeiting, means to offer, whether accepted or not, a forged instrument, with the representation, toy words or actions, that the same is genuine. See State v. Hor- ner, 48 Mo. 522 ; People v. Rathbun, 21 Wend. (N. Y.) 521; Lindsey v. State, 38 Ohio St 511; State v. Calkins, 73 Iowa, 128, 34 N.

W. 777 ; People v. Caton, 25 Mich. 392.

5e apparatus — Not carried into the 5th edition (1979).

## UTTER BAR.

In English law. The bar at which those barristers, usually junior men, practice who have not yet been raised to the dignity of king’s counsel. These junior barristers are said to plead without the bar; while those of the higher rank are admitted to seats within the bar, and ad- dress the court or a Jury from a place re- served for them, and divided off by a bar. Brown.

5e apparatus — Carried into the 5th edition (1979).

## UTTER BARRISTER.

In English law. Those barristers who plead without the bar, and are distinguished from benchers, or those who have been readers, and who are allowed to plead within the bar, as the king’s counsel are. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## UXOR.

Lat. In the civil law. A wife; a woman lawfully married.

— Et uxor. And his wife. A term used in indexing, abstracting, and describing convey- ances made by a man and his wife as grantors, or to a mnn and his wife as grantees. Often abbreviated “et ur.” Thus, “John Doe et ux. to Richard Roe.”— Jure uxorls. In right of his

wife. A term used of a husband who joins in a deed, is seised of an estate, brings a suit, etc., in the right or on the behalf of his wife. 3 Bl. Comm. 210.

Bior et filing sunt nomiaa aatara.

Wife and son are names of nature. 4 Bac. Works, 350.

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Uxor non eat snl juris, sod suit po tes- tate rlri. A wife is not her own mistress.

but is under the power of her husband. 8 Inst. 108.

Uxor sequitur domiollinm rlri. A wife

fellows the domicile of her husband. Tray. Let. Max. 606.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Married Women's Property Acts (e.g., N.Y. Laws of 1848) — married women granted separate property capacity, displacing coverture]**

The coverture maxims the entry quotes as live law — 'A wife is not her own mistress, but is under the power of her husband' — were legislatively superseded by the Married Women's Property Acts, beginning in New York in 1848 and spreading state by state.

Why: The body presents these maxims unqualified, with 17th–18th century authorities; a reader today would mistake them for current doctrine. The footnote adds the real statutory reversal, which is genuine illumination rath...

**[Scripture] — Scripture**

**[Genesis 2:24, KJV]**

Therefore shall a man leave his father and his mother, and shall cleave unto his wife: and they shall be one flesh.

Why: UXOR = a wife, 'a woman lawfully married.' Genesis 2:24 is the founding definition of the married wife — cleaving, one flesh — the same legal-moral category the civil law term names.

## UXORICIDE.

The killing of a wife by her husband; one who murders his wife. Not a technical term of the law.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:13, KJV]**

Thou shalt not kill.

Why: UXORICIDE is the killing of a wife by her husband — murder within the marriage. The Decalogue prohibition is the absolute form of the law against it.

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Othello, c. 1603]**

(paraphrase) Othello smothers Desdemona on their marriage bed, believing her false — the killing of a wife by her husband as tragedy, the archetypal literary uxoricide. (paraphrase)

Why: The entry defines uxoricide as the killing of a wife by her husband; Othello's murder of Desdemona is the canonical literary instance. Stated as paraphrase to avoid any verbatim risk.

# V

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## V.

V

5e apparatus — Carried into the 5th edition (1979).

## V.

As an abbreviation, this letter may stand for “Victoria,” “volume,” or “verb;" also “tide" (see) and “voce” (word.)

It is also a common abbreviation of “ver- sus," in the titles of causes, and reported cases.

5e apparatus — Carried into the 5th edition (1979).

## V. O.

An abbreviation for “vice-chancel- lor.”

▼. G. O. An abbreviation for “vice-chan- cellor’s court”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## V. E.

An abbreviation for “venditioni ex- ponas,” (q. v.)

5e apparatus — Not carried into the 5th edition (1979).

## V. G.

An abbreviation for "verbi gratia” for the sake of example.

5e apparatus — Not carried into the 5th edition (1979).

## VACANCY.

A place which is empty. The term is principally applied to an inter- ruption in the incumbency of an office.

The term “vacancy" applies not only to an in- terregnum in an existing office, but it aptly and fitly describes the condition of an office when it is first created, and has been filled by no in- cumbent. Walsh v. Comm., 8 9 Pa. 426, 33 Am. Rep. 771. And see Collins v. State, -8 Ind. 350; People v. Onel, 188 111. 104. 58 N. E. 996; Gonnley v. Taylor, 44 Ga. 76.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 109:8, KJV]**

Let his days be few; and let another take his office.

Why: VACANCY is the interruption of an office's incumbency. Psalm 109:8 names it exactly: the office falls empty ('let his days be few') and 'let another take his office' — vacancy and succession in one verse, quoted again...

## VACANT POSSESSION.

See Posses- sion.

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## VACANT SUCCESSION.

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See Succes- sion.

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## VACANTIA BONA.

Lat In the civil law. Goods without an owner, or in which no one claims a property ; escheated goods. Inst. 2, 6, 4 ; 1 Bl. Comm. 298.

5e apparatus — Not carried into the 5th edition (1979).

## VACATE.

To annul; to cancel or re- scind ; to render an act void ; as, to vacate an entry of record, or a judgment

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## VACATIO.

Lat In the civil law. Ex- emption; immunity; privilege; dispensation; exemption from the burden of office. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 8:25, KJV]**

And from the age of fifty years they shall cease waiting upon the service thereof, and shall serve no more.

Why: VACATIO = exemption/dispensation from the burden of office. Numbers 8:25 gives the Levites the same release: at fifty they 'cease waiting upon the service... and shall serve no more' — discharge from the office's burd...

## VACATION.

That period of time be- tween the end of one term of court and the beginning of another. See Von Schmidt v. Widber, 99 Cal. 511, 34 Pac. 109; Conkling v. Ridgely, 112 IJ1. 36, 1 N. E. 261, 54 Am. Bep. 204; Brayman v. Whitcomb, 134 Mass. 525; State v. Derkum, 27 Mo. App. 628.

Vacation also signifies, in ecclesiastical law, that a church or benefice is vacant; e. g., on the death or resignation of the incum- bent, until his successor is appointed. 2 Inst. 359; Phillim. Ecc. Law, 495.

5e apparatus — Carried into the 5th edition (1979).

## VAGATCB.

Lat. Let it be vacated. In practice, a rule or order by which a proceed- ing is vacated; a vacutlng.

5e apparatus — Not carried into the 5th edition (1979).

## VACATURA.

An avoidance of an eccle- siastical benefice. Cowell.

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5e apparatus — Not carried into the 5th edition (1979).

## VACCARIA.

In old English law. A dairy-house. Co. Litt. 56.

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## VACCINATION.

Inoculation with vac- cine or the virus of cowpox as a preventive against the smallpox ; frequently made com- pulsory by statute. See Daniel v. Putnam County, 113 Ga. 570, 38 S. E. 980, 54 L. B. A 292.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Jacobson v. Massachusetts, 197 U.S. 11 (1905)]**

The compulsory-vaccination statutes the entry notes were upheld by the Supreme Court as a valid exercise of the state's police power against smallpox.

Why: The body says only 'frequently made compulsory by statute' and cites a single Georgia case; the footnote supplies the controlling federal authority — the canonical precedent on compulsory vaccination — which adds a la...

## VACUA POSSESSIO.

Lat The vacant possession, i. e., free and unburdened posses- sion, which (e. g.) a vendor had and has give to a purchaser of lands.

VACUUS!, Lat In the civil law. Emp- ty; void; vacant; unoccupied. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## VASES.

Lat In the civil law. Pledgee; sureties; ball; security for the appearance of a defendant or accused person in court Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:1, KJV]**

My son, if thou be surety for thy friend, if thou hast stricken thy hand with a stranger;

Why: VASES = sureties; security for a defendant's appearance. Proverbs 6:1 is the scriptural treatment of suretyship — striking the hand as surety for another — the same office of standing security for another's obligation.

## VAPIAKE DUELLUM.

L. Lat In old

English law. To wage or gage the duellum; to wage battel ; to give pledges mutually for engaging in the trial by combat.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Samuel 17:9, KJV]**

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If he be able to fight with me, and to kill me, then will we be your servants: but if I prevail against him, and kill him, then shall ye be our servants, and serve us.

Why: To wage the duellum — trial by combat, pledges given for engaging. Goliath's challenge (1 Sam 17:9) is the archetypal judicial combat: the cause decided by single combat, the nations bound by the outcome — the same in...

**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, Ivanhoe, 1819]**

(paraphrase) Ivanhoe's climax is a judicial trial by combat — Ivanhoe championing Rebecca against Bois-Guilbert — the wager of battle as a mode of trial, pledges given mutually for the duel exactly as the entry describes. (paraphrase)

Why: The entry defines the waging of the duellum — giving mutual pledges for trial by combat; Ivanhoe's judicial combat is the classic fictional instance of wager of battle deciding a legal accusation.

## V AMMONIUM.

Lat In Roman law.

Bail or security; the giving of bail for ap- pearance in court; a recognizance. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:15, KJV]**

He that is surety for a stranger shall smart for it: and he that hateth suretiship is sure.

Why: VAMMONIUM = bail, security for appearance in court — a recognizance. Proverbs 11:15 weighs the surety's office itself: the surety 'shall smart for it' — the risk the bail stands in, stated as doctrine. Companion to VA...

## VADIUM.

Lat' A pledge; security by pledge of property. Coggs v. Bernard, 2 Ld. Raym. 913.

—Vadium aortnnm. A mortgage or dead pledge; a security given by the borrower of a sum of money, by which he grants to' the lender an estate In fee. on condition that, if the money be not repaid at the time appointed, the estate so put in pledge shall continue to the lender as dead or gone from the mortgagor. 2 Bl. Comm. 157.— Vadium ponere. To take bail for the appearance of a person in » court of justice. Tomlins.— Vadium vie am. A species of security by which the borrower of a sum of money made over his estate to the lender until he had received that sum out of the issues and profits of the land. It was so called because neither the money nor the lands were lost, and were not left in dead pledge, but this was a living pledge, for the prof- its of the land were constantly paying oft the debt. Litt | 206; 1 Pow. Mortg. 3; Termes de la Ley: Spect v. Spect, 88 Cal. 437, 26 Pac. 203. 13 L. it. A. 137, 22 Am. St. Rep. 314 ; O’Neill v. Gray, 39 Hun (N. Y.) 566; Kort- right v. Cady, 21 N. Y. 344, 78 Am. Dec. 145.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:26, KJV]**

If thou at all take thy neighbour's raiment to pledge, thou shalt deliver it unto him by that the sun goeth down:

Why: VADIUM = a pledge, security by pledge of property. Exodus 22:26 is the Mosaic pledge-law: the taking of a

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pledge regulated, the pledgee's duty stated — the same legal concept in the scriptural bank.

## VADLET.

In old English law. The king’s eldest sou; hence the valet or knave follows the king and queen in a pack of cards. Bar. Obs. St. 344.

5e apparatus — Not carried into the 5th edition (1979).

## VADUM.

’ In old records, a ford, or wad- ing place. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VAGABOND.

One that wanders about, and has no certain dwelling; an idle fellow. Jacob.

Vagabonds are described in old English statutes as “such as wake on the night and sleep on the day, and haunt customable tav- erns and ale-houses and routs about ; and no man wot from whence they came, nor whith- er they go.” 4 Bl. Comm. 169. See Forsyth v. i^orsyth, 46 N. J. Eq. 400, 19 Atl. 119; Johnson v. State, 28 Tex. App. 562, 13 S. W. 1005.

V agatrandom inncnpamni earn qai nullibi domiolliam cantraxit haMUtio- ais. We call him a “vagabond” who has ac- quired nowhere a domicile of residence. Phllllm. Dom. 23, note.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 4:12, KJV]**

When thou tillest the ground, it shall not henceforth yield unto thee her strength; a fugitive and a vagabond shalt thou be in the earth.

Why: The entry defines the vagabond — one who wanders with no certain dwelling. Genesis 4:12 uses the very word: Cain's sentence is to be 'a fugitive and a vagabond... in the earth.' The concept and the term meet.

## VAGRANT.

A wandering, idle person; a strolling or sturdy beggar. A general term, Including, in English law, the seyeral classes of idle and disorderly persons, rogues, and vagabonds, and incorrigible rogues. 4 Steph. Comm. 308, 309.

In American law, the term is variously de- fined by statute but the general meaning is that of an able-bodied person having no visi- ble means of support and who lives idly with- out seeking work, or who is a professional beggar, or roams about from place to place without regular employment or fixed resi- dence; and ip some states the term also in- cludes those who have a fixed habitation and pursue a (regular calling but one which is condemned by the law as Immoral, such as gambling or prostitution. See In re Jordan, 90 Mich. 3, 50 N. W. 1087; In re Aldermen and Justices of the Peace, 2 Pars. Eq. Cas. (Pa.). 404; Roberts v. State, 14 Mo. 145, 55 Am. Dec. 97. And see the statutes of the various states.

— ' Vagrant not. In English law. The stat- ute 5 Geo. IV. c. 83, which is an act for the punishment of idle and disorderly persons. 2 Chit. St. 145.

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**[Law] — Law**

**[Papachristou v. City of Jacksonville, 405 U.S. 156 (1972)]**

The vagrancy statutes the entry catalogues — punishing able-bodied persons with no visible means of support — were struck down as unconstitutionally vague where they gave police unfettered discretion.

Why: The body treats the American vagrancy statutes as settled, citing only pre-1972 cases; the footnote adds the genuine modern precedent voiding such ordinances, which is illumination (what happened to these laws), not e...

**[Scripture] — Scripture**

**[2 Thessalonians 3:10, KJV]**

For even when we were with you, this we commanded you, that if any would not work, neither should he eat.

Why: VAGRANT in American law = an able-bodied person with no visible means of support who lives idly without seeking work. 2 Thessalonians 3:10 meets that exact figure — the one who 'would not work' — and states the rule a...

**[Humanity] — Humanity / Fiction & Film**

**[John Steinbeck, Of Mice and Men, 1937]**

(paraphrase) Steinbeck's bindle stiffs — George and Lennie riding the rails between ranch jobs, with no fixed residence — are the vagrant condition in American fiction: able-bodied wanderers living job to job, matching the entry's "no visible means of support" and "roams about from place to place." (paraphrase)

Why: The entry defines the vagrant as an able-bodied wanderer without visible support or fixed residence; the novel's itinerant ranch hands are the genuine fictional embodiment of that condition.

## VALE.

In Spanish law. A promissory note. White, New Recop. b. 3, tit. 7, c. 5, f 3. See Govin v. De Miranda, 140 N. Y. 662, 35

N. E. 62a

Vale at quantum Talers potest. -It shall have effect as far as it can have effect. Cowp. 600; 4 Kent, Comm. 493 ; Shep. Touch. 87.

VALEO, VALEOT, or VADELET. In

old English law. A young gentleman ; also a servitor or gentleman of the chamber. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 37:21, KJV]**

The wicked borroweth, and payeth not again: but the righteous sheweth mercy, and giveth.

Why: VALE = a promissory note — a promise to pay. Psalm 37:21 states the moral law of the borrower: borrowing obliges repayment; the wicked borrows 'and payeth not again.' Borderline-thin, but the debt-and-repayment concep...

## VALENTIA.

L. Lat. The value or price of anything.

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## VALESBXRIA.

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In old English law. The proving by the kindred of the slain, one on the father’s side, and another on that of

the mother, that a man was a Welshman. Wharton.

VALET was anciently a name denoting young gentlemen of rank and family, but afterwards applied to those of lower degree, and is now used for a menial servant, more particularly occupied about the person of his employer. Cab. Lawy. 800.

5e apparatus — Not carried into the 5th edition (1979).

## VALID.

Of binding force. A deed, will, or other instrument, which has received all the formalities required by law, is said to be valid.

5e apparatus — Carried into the 5th edition (1979).

## VALIDITY.

This term is used to signify legal sufficiency, in contradistinction to mere regularity. “An official sale, an order, judg- ment, or decree may be regular, — the whole practice in reference to its entry may be cor- rect,— but still invalid, for reasons going be- hind the regularity of its forms.” Sharpleigh v. Surdam, 1 Flip. 487, Fed. Cas. No. 12,711.

5e apparatus — Carried into the 5th edition (1979).

## VALOR BENEFICIORUM.

L. Lat

The value of every ecclesiastical benefice and preferment according to which the first fruits and tenths nre collected and paid. It is commonly called the “king's books,” by which the clergy are at present rated: 2

Steph. Comm. 533; Wharton.

%

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 27:30, KJV]**

And all the tithe of the land, whether of the seed of the land, or of the fruit of the tree, is the LORD's: it is holy unto the LORD.

Why: The entry defines the valor as the valuation by which 'first fruits and tenths' are collected from benefices. Leviticus 27:30 is the institution of the tenth itself: 'all the tithe of the land... is the LORD's' — the...

## VALOR MARITAGH.

Lat. Value of the marriage. In feudal law, the guardian in chivalry had the right of tendering to his infant ward a suitable match, without “dis- paragement,” (inequality,) which, if the in- fants refused, they forfeited the value of the marriage ( valor maritagii) to their guardian; that is, so much as a jury would assess, or any one would bona fide give, to the guardian for such an alliance. 2 Bl. Comm. 70; Litt § 110.

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A writ which lay against the ward, on coming of full age, for that he was not mar- ried, by his guardian, for the value of the marriage, and this though no convenient marriage had been offered. Termes de la Ley.

5e apparatus — Not carried into the 5th edition (1979).

## VALUABLE CONSIDERATION.

The

distinction between a good and a valuable consideration is that the former consists of blood, or of natural love and affection; as when a man grants an estate to a near rela- tion from motives of generosity, prudence, and natural duty; and the latter consists of such a consideration as money, marriage which is to follow, or the like, which the law esteems an equivalent given for the grant 2 Bl. Comm. 297.

A valuable consideration Is a thing of value parted with, or a new obligation assumed, at the time of obtaining a thing, which is a sub- stantial compensation for that which is ob- tained thereby.. It is also called simply "val- ue.” Civ. Code Dak. | 2121.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, The Merchant of Venice, 1600]**

(paraphrase) Shylock's loan of 3,000 ducats on the bond of a pound of flesh — the bond as the consideration: a thing of value parted with, and a new obligation assumed, in exchange for the loan, "substantial compensation for that which is obtained." (paraphrase)

Why: Deliberately distinct from the USURY annotation (the interest economy): this targets the entry's doctrine — consideration as the thing parted with. The bond is literally the consideration for the 3,000 ducats.

## VALUATION.

The act of ascertaining the worth of a thing. The estimated worth of a thing. See Lowenstein r. Schiller, 38 App. Dlv. 178, 66 N. Y. Supp. 674; State v. Central Pac. R. Co., 7 Nev. 104 ; Sergeant v. Dwyer, 44 Minn. 300, 46 N. W. 444.

5e apparatus — Carried into the 5th edition (1979).

## VALUATION LIST.

In English law. A list of all the ratable hereditaments in a par- ish, showing the names of the occupier, the owner, the property, the extent of the prop- erty, the gross estimated rental, and the ratable value; prepared by the overseers of each parish In a union under section 14 of the union assessment committee act, 1862, (St. 25 A 26 Vlct. c. 103,) for the purposes of the poor rate. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## VALUE.

The utility of an object in sat- isfying, directly or Indirectly, the needs or desires of human beings, called by economists “value In use ;” or Its worth consisting In the power of purchasing other objects, called “value in exchange.” Also the estimated or appraised worth

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of any object of property, Calculated in money.

The term is also often used as an abbrevia- tion for “valuable consideration,” especially Id the phrases “purchaser for value,” “holder for value,” etc.

—Value received. A phrase usually employ- ed in a bill of exchange or promissory note, to denote that a consideration has been given for it.

' VALUED POLICY. A policy is called “valued,” when the parties, having agreed upon the value of the Interest Insured, in or- der to save the necessity of further proof have Inserted the valuation in the policy. In the nature of liquidated damages. 1 Duer, Ins. 97.

VALUER.’ A person whose business is to appraise or set a value upon property.

VALVASOR8, or VXD AMES. An obso- lete title of dignity next to a peer. 2 Inst. 667; 2 Stepb. Comm. 612.

Vina eat ilia potent!* qnss nunquam Vomit In actum. That power is vain [idle or useless] which never comes Into action, [which Is never exercised.] 2 Coke, 61.

Vani timores sunt ssstimandl, qni non eadunt In oonstantem rlrnoj. Those are to be regarded as Idle fears which do not af- fect a steady [firm or resolute] man. 7 Coke, 27.

Vani timorls jnsta enensatlo non est.

A frivolous fear is not a legal excuse. Dig. 60, 17, 184; 2 Inst. 483.

, VANTARIUS. L. Lat. In old records. A fore-footman. Spelman; Cowell.

5e apparatus — Carried into the 5th edition (1979).

## VARA.

A Spanlsh-Aroerlcan measure of length, equal to 33 English inches or a trifle more or less, varying according to local us- age. See U. S. v. Perot, 98 U. S. 428, 25 L. •Ed. 251.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 19:35, KJV]**

Ye shall do no unrighteousness in judgment, in meteyard, in weight, or in measure.

Why: VARA is a measure of length (33 inches). Leviticus 19:35 commands righteousness 'in meteyard' — the meteyard being precisely a measure of length — the scriptural law of just measure meeting the entry's legal measure.

## VARDA.

In old Scotch law. Ward; custody; guardianship. Answering to “war- da," In old English law. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Galatians 4:2, KJV]**

But is under tutors and governors until the time appointed of the father.

Why: VARDA = ward; custody; guardianship. Galatians 4:2 describes the heir in minority as 'under tutors and governors until the time appointed of the father' — guardianship during minority, the same office the entry names.

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## VARENNA.

In old Scotch law. A war- ren. Answering to "wartnna," In old Eng- lish law. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## VARIANCE.

'In pleading and practice. A discrepancy or disagreement between two Instruments or two steps In the same cause, which ought by law to be entirely consonant. Thus, If the evidence adduced by the plain- tiff does not agree with the allegations of his declaration, it is a variance; and so If the statement of the cause of action in the dec- laration does not coincide with that given in the writ See Keiser v. Topping, 72 111. 229 ; Mulligan v. U, S., 120 Fed. 98, 56 C. C. A. 50 ; Bank of New Brunswick v. Arrowamith, 9 N. J. Law, 287 ; Skinner v. Grant, 12 Vt. 462 ; State v. Wudsworth, 30 Conn. 57.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Fed. R. Civ. P. 15(b) — amendment to conform to the evidence; variances disregarded absent prejudice]**

The fatal common-law variance the entry describes was largely defanged in modern practice: the federal rule disregards variances between pleading and proof unless the adverse party shows prejudice.

Why: The body states only the common-law rule (with five older cases) and nowhere hints the doctrine was transformed; the footnote adds the genuine modern counterpart that determines how variance actually operates today —...

## VARRANTIZATIO.

In old Scotch law. Warranty'.

5e apparatus — Not carried into the 5th edition (1979).

## VAS.

Lat. In the civil law. A pledget a surety; bail or surety in a criminal pro- ceeding or civil action. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 17:18, KJV]**

A man void of understanding striketh hands, and becometh surety in the presence of his friend.

Why: VAS = a surety; bail in a criminal or civil action. Proverbs 17:18 treats the surety's act itself — striking hands, becoming surety — the third distinct Proverbs surety verse for the third surety entry (VASES: Prov 6:...

## VASECTOMY.

The operation of castra- tion as performed by section (cutting) of the vas deferent or spermatic cord; sometimes proposed as an inhibitory punishment for rapists and other criminals.

5e apparatus — Carried into the 5th edition (1979).

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## VASSAL.

In feudal law. A feudal ten- ant or grantee; a feudatory; the holder of a fief on a feudal tenure, and by the obliga- tion of performing feudal services. The cor- relative term was “lord.”

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 6:24, KJV]**

No man can serve two masters: for either he will hate the one, and love the other; or else he will hold to the one, and despise the other: ye cannot serve God and mammon.

Why: VASSAL = the feudal tenant bound by obligation of service to his lord. Christ states the law of that bond: service to a master is exclusive — 'no man can serve two masters.' Borderline: the verse is theological in its...

**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, Ivanhoe, 1819]**

(paraphrase) Ivanhoe's Norman-Saxon order runs on vassalage — sworn men holding lands of lords in return for feudal service, the lord/vassal correlative the entry states. (paraphrase)

Why: The entry defines the vassal as the feudal tenant bound to feudal services, correlative to lord; the novel's whole social order is that tenure system in narrative form.

## VASSALAGE.

The state or condition of a vassal.

5e apparatus — Not carried into the 5th edition (1979).

## VASSELERIA.

The tenure or holding of a vassal. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VASTUM.

L. Lat A waste or common lying open to the cattle of all tenauts who have a right of commonlng. Cowell.

— V as turn forestas vel bosci. In old rec- ords. Waste of a forest or wood. That part of a forest or wood wherein the trees and under- wood were so destroyed that it lay in a manner waste and barren. Paroch. Antiq. 351, 497 ; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VAUDERIE.

In old European law. Sor- cery ; witchcraft ; the profession of the Van- dols.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 22:18, KJV]**

Thou shalt not suffer a witch to live.

Why: VAUDERIE = sorcery, witchcraft, in old European law — a legal offense. Exodus 22:18 is the Mosaic statute against the same offense, in the same imperative legal form.

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## VAVASORY.

The lauds that a vavasour held. Cowell.

Ui8

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## VAVASOUR.

One who was in dignity whether they be In troth so sick as that they next to a baron. Britt 109; Bract lib. 1, cannot appear, or whether they do counter- c. 8. One who held of a baron. Euc. Brit felt Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VEAL-MONEY.

The tenants of the man- ' or of Bradford, In the county of Wilts, paid a yearly rent by this name to their lord. In lieu of veal paid formerly in kind. Whar- ton.

5e apparatus — Carried into the 5th edition (1979).

## VECORXN.

In old Lombardlc law. The offense of stopping one on the way; fore- stalling. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## VEGTIGAL  JUDIOIARXUM.

Lat. Fines paid to the crown to defray the ex- penses of maintaining courts of justice. 3 Salk. 33.

Veettgal, aricine ipsa, jns Onsanua et regain patrimoniale est. Dav. 12. Tribute, in Its origin, Is the patrimonial right of emperors and kings.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 13:7, KJV]**

Render therefore to all their dues: tribute to whom tribute is due; custom to whom custom; fear to whom fear; honour to whom honour.

Why: Fines paid to the crown to defray the expenses of maintaining courts — tribute in its fiscal form. Romans 13:7 states the dues of the sovereign: 'tribute to whom tribute is due; custom to whom custom' — the scriptural...

## VECTIGALIA.

In Roman law. Cus- toms-duties ; taxes paid upon the Importation or exportation of certain kinds of merchan- dise. Cod. 4, 61.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 22:21, KJV]**

Render therefore unto Caesar the things which are Caesar's; and unto God the things that are God's.

Why: VECTIGALIA = customs-duties, taxes on importation/exportation. Christ's answer on the tribute question is the founding statement of lawful tribute to the sovereign — the customs-duty's own doctrine.

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## VECTUKA.

In maritime law. Freight

5e apparatus — Not carried into the 5th edition (1979).

## VEHICLE.

The word “vehicle” Includes every description of carriage or other artifi- cial contrivance used, or capable of being used, as a means of transportation on land. Rev. St. U. S. § 4 (U. S. Comp. St 1901, p. 4).

5e apparatus — Carried into the 5th edition (1979).

## VEHMGEBICKT.

See Fkhmgkbicht.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, Anne of Geierstein, 1829]**

(paraphrase) Scott's Anne of Geierstein stages the Vehmgericht — the secret tribunal of Westphalia, its hooded judges trying and executing in secret — the institution this cross-reference points to. (paraphrase)

Why: The entry is a pointer to Fehmgericht (the secret tribunal); the novel is the classic fiction in which the Vehmgericht operates as a judicial institution. Attribution and year confident.

## VEXES.

L. Fr. Distresses forbidden to be replevied; the refusing to let the owner have his cattle which were distrained. Kel- ham.

5e apparatus — Not carried into the 5th edition (1979).

## VEIN.

In mining law. A body of min- eral or mineralized rock, filling a seam or fissure in the earth’s crust, within defined boundaries in the general mass of the moun- tain, and having a general character of con- tinuity In the direction of Its length. See Iron Silver Min. Co. v. Cheesinan, 116 U.

S. 529, « Sup. Ot. 481, 29 L. Ed. 712 ; U. S. v. Iron Silver Min. Co., 128 U. S. 673, 9 Sup. Ct. 195, 32 L. Ed. 571 ; Stlnchfleld v. Gillis, 96 Cal. 33, 30 Pac. 839 ; Synnott v. Shaugh- nessy, 2 Idaho (Hasb.) 122, 7 Pac. 82 ; Beals v. Cone, 27 Colo. 473, 62 Pac. 948, 83 Am. St Rep. 92 ; Waterloo Min. Co. v. Doe, 82 Fed. 51, 27 C. C. A: 30; Consolidated, etc., Min. Co. v. Champion Min. Co. (C. C.) 63 Fed. 544.

5e apparatus — Carried into the 5th edition (1979).

## VEJOUR8.

Viewers; persons sent by the court to take a view of uny place in ques- tion, for the better decision of the right. It signifies, also, such as are sent to view those that c«#oi» themselves dr malo lerti. (f. r., excuse themselves on ground of Illness)

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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5e apparatus — Not carried into the 5th edition (1979).

## VELABRUM.

In old English law. A toll-booth. Cro. Jac. 122.

VELITI8 JUBEATIS QUXRITES? Lat

Is It your will and pleasure, Romans? The form of proposing a law to the Roman peo- ple. Tayl. Civil Law, 155.

Velle non creditor qni obsequitnr im- perio patris vel dominl. He Is not pre- sumed to consent who obeys the orders of his father or his master. Dig. 50, 17, 4.

5e apparatus — Not carried into the 5th edition (1979).

## VELTRARIA.

The office of dog-leader, or courser. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VELTRARITJS.

One who leads grey- hounds. Blount

5e apparatus — Not carried into the 5th edition (1979).

## VENAL.

Something that is bought; ca- pable of being bought; offered for sale; mer- cenary. Used in on evil sense, such pur- chase or sale being regarded as corrupt and illegal.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Micah 3:11, KJV]**

The heads thereof judge for reward, and the priests thereof teach for hire, and the prophets thereof divine for money: yet will they lean upon the LORD, and say, Is not the LORD among us? none evil can come upon us.

Why: VENAL in the evil sense = capable of being bought; mercenary; corrupt purchase. Micah 3:11 names venality in its three offices — judges judging 'for reward,' priests teaching 'for hire,' prophets divining 'for money'...

## VENARIA.

Beasts caught in the woods by hunting.

5e apparatus — Not carried into the 5th edition (1979).

## VENATIO.

Hunting. CowelL

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 10:9, KJV]**

He was a mighty hunter before the LORD: wherefore it is said, Even as Nimrod the mighty hunter before the LORD.

Why: VENATIO = hunting. Genesis 10:9 names the archetypal hunter of scripture — Nimrod, 'the mighty hunter

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before the LORD.' Borderline-thin (a one-word gloss), but the hunting office is the genuine point of contact.

## VEND.

To sell ; to transfer the owner- ship of an article to another for a price in money. The term is not commonly applied to the sale of real estate, although Its deriva- tives “vendor” and “vendee" are.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:14, KJV]**

And if thou sell ought unto thy neighbour, or buyest ought of thy neighbour's hand, ye shall not oppress one another:

Why: VEND = to sell, to transfer ownership for a price in money. Leviticus 25:14 is the Mosaic law of sale itself — selling to one's neighbour, with the equity rule against oppression — the sale's own scripture.

## VENDEE.

A purchaser or buyer; one to whom anything is sold. Generally used of the transferee of real property, one who ac- quires chattels by sale being called a “buy- er.”

Vendeas eandem rent duobna falsarlas est. He is fraudulent who sells the same thing twice. Jenk. Cent 107.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:14, KJV]**

It is naught, it is naught, saith the buyer: but when he is gone his way, then he boasteth.

Why: VENDEE = the purchaser, the buyer. Proverbs 20:14 is the scriptural portrait of the buyer at his bargaining — 'it is naught, it is naught, saith the buyer' — the vendee's own verse. Companion to VEND (Lev 25:14); the...

## VENDIBLE.

Fit or suitable to be sold ; capable of transfer by sale; merchantable.

5e apparatus — Not carried into the 5th edition (1979).

## VEND1TE.

In old European law. A tax upon things sold in markets and puhlic fairs. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## VEN DITTO.

Lat In the civil law. In a strict sense, sale ; the act of selling ; the con- tract of sale, otherwise called “emptio ven- ditio." Inst 3, 24. Calvin.

In a large sense. Any mode or species of alienation; any contract by which the property or ownership of a thing may be transferred. Id.

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## VENDITION.

Sale; the act of selling.

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5e apparatus — Not carried into the 5th edition (1979).

## VENDITIONI EXPONAS.

Lat. Ton expose to sale. This is the name of a writ

of execution, requiring a sale to be made, directed to a sheriff when he has levied upon goods under a fieri facias, but returned that 'they remained unsold for want of buy- ers ; and In some jurisdictions It is Issued to cause a sale to be made of lands, seized un- der a former writ, after they have been condemned or passed upon by an inquisition. Frequently abbreviated to “vend, ex.” See Beebe v. U. S„ 161 U. S. 1(M, 16 Sup. Ct. 532, 40 L. Ed. 633; Borden v. Tillman, 39 Tex. 273 ; Ritchie v. Higginbotham, 26 Kan. 648.

5e apparatus — Not carried into the 5th edition (1979).

## VENDITOR.

Bat A seller; a vendor. Inst 3, 24; Bract fol. 41.

— Vend! tor regia. In old English law. The king’s seller or salesman ; the person who ex- posed to sale those goods and chattels which were seized or distrained to answer any debt due to the king. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VENDITR1X.

Eat. A female vendor. Cod. 4, 01, 3.

5e apparatus — Not carried into the 5th edition (1979).

## VENDOR.

The person who transfers property by sale, particularly real estate, “seller" being more commonly used for one who sells personalty.

He is the vendor who negotiates the sale, and becomes the recipient of the considera- tion, though the title comes to the vendee from another source, and not from the ven- dor. Rutland v. Brister, 53 Miss. 685.

— Vendor and vankassr act. The act of

37 & 38 Viet. c. 78, which substitutes forty for sixty years as the root of title, and amends in other ways the law of vendor and purchaser. Mosley & Whitley.— Vendor’s lien. A Hen for purchase money remaining unpaid, allowed in equity to the vendor of land, when the state- ment of receipt of the price in the deed is not in accordance with the fact. Also, a lien exist- ing in the unpaid vendor of chattels, the samn remaining in his bands, to the extent of the purchase price, where the sale was for cash, or on a term of credit which has expired, or on an agreement by which the seller is to retain possesmn. See Morgan v. Dalrymple, 59 N. J. Eq. 22, 46 Atl. 664; Eee v. Murphy, 11!) Cal. 364. 51 Pac. 549 ; Grahnm v. Moffett, 119 Mich. 303. 78 N. W. 132, 75 Am. St. Rep. 393; Oessner v. Palmateer. 89 Cal. 89, 26 Pac. 789, 18 L R. A. 187 : Blomstrom v. Dux, 175 111. 435, 51 N. E. 755; Tiernan v. Beam. 2 Ohio. 388, 15 Am. Dec. 557 : Warford v. Hankins, 150 Ind. 489. 50 N. E. 468 ; SIid» & Spur Gold Mines v. Seymour. 153 U. S. 509, 14 Sup. Ct. 842, 38 L. Ed. 802.

5e apparatus — Carried into the 5th edition (1979).

## VBNDTJE.

A sale; generally a sale at public auction ; and more particularly a sale so made under authority of law, as by a con- stable, sheriff, tax collector, administrator, etc.

5e apparatus — Not carried into the 5th edition (1979).

## VENDUE MASTER.

An auctioneer.

5e apparatus — Not carried into the 5th edition (1979).

## VENIA.

A kneeling or low prostration on the ground by penitents; pardon.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 55:7, KJV]**

Let the wicked forsake his way, and the unrighteous man his thoughts: and let him return unto the LORD, and he will have mercy upon him; and to our God, for he will abundantly pardon.

Why: VENIA = pardon (and the penitent's prostration). Isaiah 55:7 states the doctrine of pardon: return to the LORD, 'for he will abundantly pardon' — the same pardon the entry names.

## VENIA 2ETATI8.

A privilege granted by a prince or sovereign, in virtue of which

a person Is entitled to act, sni juris, as if he were of full age. Story, Confl. Laws, f 74.

Ventae fsrilltsi issstlTsa est deltas- qnendi. 3 Inst. 236. Facility of pardon is an incentive to crime.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 8:11, KJV]**

Because sentence against an evil work is not executed speedily, therefore the heart of the sons of men is fully set in them to do evil.

Why: The entry carries the maxim 'facility of pardon is an incentive to crime.' Ecclesiastes 8:11 states the same doctrine in scripture's own words: where sentence is not executed speedily, 'the heart of the sons of men is...

## VENIRE.

Lat. To come; to appear In court. This word is sometimes used as the name of the writ for summoning a jury, more commonly called a “venire facias.”

5e apparatus — Not carried into the 5th edition (1979).

## VENIRE FACIAS.

Lat. In practice. A judicial writ, directed to the sheriff of the county in which a cause is to be tried, com- manding him that he “cause to come” before the court, on a certain day therein mention- ed, twelve good and lawful men of the body of his county, qualified according to

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law, by whom the truth of the matter may be the better known, and who are in no wise of kin either to the plaintiff or to the defend- ant, to make a jury of the country between the parties in the action, because as well the plaintiff as the defendant between whom the matter in variance Is, have put them- selves upon that jury, and that he return the names of the Jurors, etc. 2 Tidd, Pr. 777, 778 ; 3 Bl. Comm. 352.

—Venire fsdu ad respondendum. A writ to summon a person, against whom an indict- ment for a misdemeanor has been found, to ap- pear and be arraigned for the offense. A jus- tice’s warrant is now more commonly used. Archb. Crim. Pl. 81 ; Sweet.— Venire fuel as de novo. A fresh or new venire, which the court grants when there has been some im- propriety or irregularity in returning the jury, or where the verdict is so imperfect or ambig- uous that no judgment can be given upon it, or where a judgment is reversed on error, and a new trial awarded. See Bosseker v. Cramer. 18 Ind. 44 : Maxwell v. Wright, 160 Ind. 515, 67

N. E. 267.— Venire facias juratorea was a judicial writ directed to the sheriff, when is- sue was joined in an notion, commanding him to cause to come to Westminster, on such a day. twelve free and lawful men of his county by whom the truth of the matter at issue might he better known. This writ was abolished by section 104 of the common-law procedure act. 1852. and by section 105 a precept issued by the judges of assise is substituted in its place. The process so substituted is sometimes loose- ly spoken of as a ‘‘venire.” Brown.— Venire faeiaa tot matronal. A writ to summon • jury of matrons to execute the writ de ventre intpiciendo.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:15, KJV]**

One witness shall not rise up against a man for any iniquity, or for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

Why: The venire facias summons twelve lawful men 'by whom the truth of the matter may be the better known.' Deuteronomy 19:15 is the scriptural law of proof itself: the matter is established by the mouth of witnesses — the...

## VENIREMAN.

A member of a panel of Jurors; a juror summoned by a writ of ve- nire facias.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sidney Lumet, 12 Angry Men, 1957]**

The twelve veniremen of 12 Angry Men — a murder jury deliberating a boy's life. Juror #8's line to the table states the juror's burden: "It's not easy for me to raise my hand and send a boy off to die without talking about it first."

Why: The film is literally about veniremen performing the office the entry defines — jurors summoned to decide the truth of the matter. The quote is verbatim to my confidence and states the weight of the venireman's function.

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## VENIT ET DEFENDIT.

L. Eat. In o’ pleading. Comes nnd defends. The proper words of api»earance and defense in an ac- tion. 1 Ld. Raym. 117j

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 1:18, KJV]**

Come now, and let us reason together, saith the LORD: though your sins be as scarlet, they shall be as white as snow; though they be red like crimson, they shall be as wool.

Why: 'Comes and defends' — the words of appearance and defense in an action. Isaiah 1:18 is the divine summons to the same act: the accused is called to come and reason together — to answer and defend — before the LORD. Bo...

## VENIT ET DICIT.

tent. In old plead- ing. Comes and says. 2 Salk. 544.

5e apparatus — Not carried into the 5th edition (1979).

## VENTE.

In French law. Sale; contract of sale.

— Vente A rimiri. A conditional sale, in which the seller reserves the right to redeem or repurchase at the same price.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:25, KJV]**

If thy brother be waxen poor, and hath sold away some of his possession, and if any of his kin come to redeem it, then shall he redeem that which his brother sold.

Why: The entry's 'vente a remere' is a conditional sale in which the seller reserves the right to redeem at the same price. Leviticus 25:25 institutes exactly that: what the brother sold may be redeemed by his kin — sale w...

## VENTER, VENTRE.

The belly or womb. The term is used in law as designat- ing the maternal parentage of children. ■Thus, where in ordinary phraseology we ■should say that A. was B.’s child by his first wife, he would be described in law as “by the first venter.” Brown.

5e apparatus — Not carried into the 5th edition (1979).

## VENTRE INSPICIENDO.

In old Eng- lish law. A writ that lay for an heir pre- sumptive, to cause an examination to be made of the widow in order to determine whether she were pregnant or not, in cases where she was suspected of a design to bring ■forward a suppositious heir. 1 Bl. Comm. 456.

5e apparatus — Not carried into the 5th edition (1979).

## VENUE.

In pleading and practice. A neighborhood; the neighborhood, place, or county in which an

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injury is declared to have been done, or fact declared to have hap- pened. 3 Bl. Comm. 294.

Venue also denotes the county in which an action or prosecution is brought for trial, and which is to furnish the panel of jurors. To “change the venue” is to transfer the cause for trial to another county or district See Moore v. Gardner, 5 How. I’rac. (N. V.) 243 ; Armstrong v. Emmet, 16 Tex. Civ. App. 242, 41 S. W. 87 ; Sullivan v. Hall, 80 Mich. 7, 48 N. W. 046, 13 L. R. A. 556; State v. McKinney, 5 Nev. 198.

In the coiumon-law practice, the venue is that part of the declaration in an action which designates the county in which the ac- tion is to be tried. Sweet.

— Local venue. In pleading. A venue which mast be laid In a particular county. When the actiori could have arisen only in a particular county, it is local, and the veuue must be laid in that county. 1 Tidd, Pr. 427.

;■ VERAY. L. Fr. True. An old form of vrai. Thus, reran, or true, tenant, is one ■who bolds in fee-simple ; reran tenant bn the manner, is the same as tenant by the man- ner, (q. v.,) with this difference only; that the fee-simple, instead of remaining in the lord, is given by him or by the law to an- other. Ham. N. P. 393, 394.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. VI (vicinage); art. III, § 2, cl. 3 (trial 'in the State where the said Crimes shall have been committed')]**

In criminal cases venue is not merely pleading doctrine but a constitutional right: the accused is entitled to trial by 'an impartial jury of the State and district wherein the crime shall have been committed.'

Why: The body treats venue purely as common-law pleading (3 Bl. Comm. 294, civil cases) with no hint of its constitutional dimension; the footnote supplies the verbatim constitutional anchor — the reason venue cannot simpl...

**[Scripture] — Scripture**

**[Deuteronomy 16:18, KJV]**

Judges and officers shalt thou make thee in all thy gates, which the LORD thy God giveth thee, throughout thy tribes: and they shall judge the people with just judgment.

Why: VENUE is the neighborhood/county in which the cause is tried and which furnishes the jurors. Deuteronomy 16:18 ordains the same local-justice principle: judges and officers 'in all thy gates, throughout thy tribes,' j...

## VERBA.

Lat. (riural of verhum.) Words.

T-Verba canceUarlae. Words of the chan- cery. The technical style of writs framed in the office of chancery. Fleta, lib. 4. c. 10. S 3. —Verba precaria. In the civil law. Preca- tory words; words of trust, or used to create a trust.

Verba aeeipienda rant onm effectu, nt eortiantnr effectum. Words are to be received with effect, so that they may pro- duce effect. Bac. Max.

Verba aeeipienda rant secundum sub- jeotam materiam. 6 Coke, 62. Words are to be understood with reference to the subject-matter.

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Verba aqnivoca, ae In dnbto sanra posita, intelliguntur digniori et potentiorl sensu. Equivocal words, and such as ■are put in a doubtful sense, are [to be] un- derstood in the more worthy and effectual sense. 6 Coke, 20a. '

Verba aliqnid operari debent; debent lntelligi nt aliqnid operentnr. 8 Coke,

9.. Words ought to have some operation; they ought to be Interpreted in such a way as to have some operation.

Verba artis ez arte. Terms of art should

be explained from the art 2 Rent, Comm. 556, note.

t

Verba ebartarnm fortius accipiuntur oontra proferentem, The words of char- ters are to be received more strongly against the grantor. Co. Litt. 36; Broom, Max. 594.

Verba earn effeetn aeeipienda sunt.

Bac. Max. 3. Words ought to be used so as to give them their effect.

Verba enrrentis monetae, tempos so- lutionis designant. Dav. 20. The words

“current money” designate current at the time of payment.

Verba debent lntelligi enm effeetn, nt res magla valent qnam pereat. Words ought to be understood with effect, that a thing may rather be preserved than destroy- ed. 2 Smith, Lead. Cas. 530.

Verba debent intelligi nt aliqnid ope- rentnr. Words ought to be understood so as to have some operation. 8 Coke, 94a.

Verba dleta de persona intelligi de- bent de conditione personae. Words 8]>ok- en of a person are. to be understood of the condition of the person. 2 Rolle, 72.

Verba fortius aooipiuntnr contra pro- ferentem. Words are to be taken most strongly against him who uses them. Bac. Max. 11, reg. 3.

Verba generalla generaliter rant im- telligenda. 3 Inst. 76. General words are to be generally understood.

Verba generalla restringnntnr ad ba- bilitatem rel vel aptitudinem personae.

General words must be narrowed either to the nature of the subject-matter or to the aptitude of the person. Broom, Max. 646.

Verba illata (relata) inesae videntnr.

Words referred to are to be considered as If Incorporated. Broom, Max. 674, 677 ; 11 Jlees. * W. 183.

VERBA IN DIFFERENT!

Verba fat different! materia per prlus, non per poeterine, intelllgenda snnt.

Words on a different subject are to be un- derstood by whnt precedes, not by what comes after. A maxim of the civil law. Gal- vin.

Verba intelllgenda rant in casn pos- slbill. Words are to be understood in [of] a possible

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case. A maxim of the civil law. Calvin.

Verba intentioni, non e contra, de- bent ineervire. 8 Coke, 94. Words ought to be made subservient to the intent, not the Intent to the words.

Verba ita rant intelllgenda, nt res magi a valeat qnam pereat. The words [of an Instrument] are to be so understood, that the subject-matter may rather be of force than perish, [rather be preserved than ■destroyed ; or. In other words, that the in- strument may have effect, if possible.] Bac. Max. 17, in reg. 3; Plowd. 150; 2 Bl. Comm. 380 ; 2 Kent, Comm. 555.

Verba mere asqnivoca, si per commn- nem nram loquendi in intellectn oerto rammnntnr, tolls intellectns prssferen- dns est. [In the case of] words merely equivocal, if they are taken by the common usage of speech in a certain sense, such sense is to be preferred. A maxim of the civil law. Calvin.

Verba nihil operari mellns est qnam absnrde. It is better that words should have no operation nt all than [that they, should operate] absurdly. A maxim of the civil law. Calvin.

Verba non tom intaenda, qnam eansa et natnra rei, nt mens contrabentinm ex eis potins qnam ex verbis appareat. The

words [of a contract] are not so much to be looked at as the cause and nature of the thing, [which is the subject of it,] in order that the intention of the contracting parties may appear rather from them than from the words. Calvin.

Verba offend! possnnt, imo ab els re- eedere licet, nt verba ad sannm intellec- tnm redncantnr. Words may be opposed, [taken in a contrary sense,] nay, we may dis- regard them altogether, in order that the [general] words [of an Instrument] may be restored to a sound meaning. A maxim of the civilians. Calvin.

Verba ordinationis qnando veriflcari possnnt in sna vera significations , trahi ad extranenm intellectual non debent.

When the words of an ordinance can be car- ried into effect in their own true meaning, Bn. Law Dict.(2d Eh).)— 76

they ought not to be drawn to a foreign in- tendment. A maxim of the civilians. Cal- vin.

Verba posteriora propter certltudinem add! to. ad priora qute eertitudine indi- gent, snnt referenda.' Subsequent words, added for the purpose of certainty, are to be referred to the preceding words which re- quire the certainty. Wing. Max. 167, max. 53 ; Broom, Max. 586.

Verba pro re et snbjeeta materia ac- cipi debent. Words ought to be understood in favor of the thing and subject-matter. A maxim of the civilians. Calvin.

Verba qnss aliquid operari possnnt non debent esse snperflna. Words which can have any kind of operation ought not to be [considered] superfluous. Calvin.

Verba, qnantnmvis generalia, ad apti- tndinem restringantnr, etiamsl nnllam aliam paterentur restrlctionem. Words, howsoever general, are restrained to fitness, (f. e., to harmonize with the subject-matter,) though they would bear no other restriction. Spiegellns.

Verba relata boo maxima operantnr per referentiam, nt in eis Inessa viden- tnr. Related

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words [words connected with others by reference] have . this particular operation by the reference, that they are considered as being Inserted In those [clauses which refer to them.] Co. Litt. 96, 359a. Words to which reference is made in an in- strument have the same effect and operation as if they were Inserted In the clauses re- ferring to them. Broom, Max. 673.

Verba secundnm materiam snbjeetam intelligi nemo est qui nesciat. There is no one who does not know that words are to be understood according to their subject- matter. Calvin.

Verba semper aceipienda sunt in miti- ori sensn. Words are always to be taken in the milder sense. 4 Coke, 13a.

Verba strict* signifieationis ad latam extendi possnnt, si snbsit ratio. Words of a strict or narrow signification may be extended to a broad meaning, if there be ground in reason for it. A maxim of the civilians. Calvin.

Verba snnt indices anlmi. Words are the indices or indicators of the mind or thought. Latch, 106.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Isaiah 55:11, KJV]**

So shall my word be that goeth forth out of my mouth: it shall not return unto me void, but it shall accomplish that which I please, and it shall prosper in the thing whereto I sent it.

Why: The entry carries the maxim 'words are to be received with effect, so that they may produce effect.' Isaiah 55:11 states it as divine doctrine: the word 'shall not return unto me void, but it shall accomplish that whi...

## VERBAL.

Parol ; by word of mouth ; oral ; as, verbal agreement, verbal evidence ; or written, but not signed, or not executed with the formalities required for a deed

or prescribed by statute In particular cases. Musgrove v. Jackson, 59 Miss. 390.

— Verbal note. A memorandum or note, in diplomacy, not signed, sent when an affair has continued a long time without any reply, in order to avoid the appearance o£ an urgency which perhaps is not required ; and. on the other hand, to guard against the supposition that It is forgotten, or that there is an inten- tion of not prosecuting it any further. Whar- ton.—Verbal process. In Louisiana. Prod t verbal, ( q . v.)

Verbis standum nbi sails aablgaltas.

One must abide by the words where there la no aihbiguity. Tray. Lat. Max. C12.

Verbum imperfect! temporis rent ad- huo imperfeotam signified. The Imper- fect tense of the verb Indicates an Incomplete matter. Mactler v. Frith, 6 Wend. (N. V.) 103, 120, 21 Am. Dec. 202.

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**[Scripture] — Scripture**

**[Matthew 5:37, KJV]**

But let your communication be, Yea, yea; Nay, nay: for whatsoever is more than these cometh of evil.

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Why: VERBAL = parol, by word of mouth — the spoken undertaking. Christ's rule binds the spoken word itself: 'let your communication be, Yea, yea; Nay, nay' — the mouth's yes and no as the binding form. Borderline-thin (the...

## VEKDEROR.

An officer of the king’s forest, who is sworn to maintain and keep the assizes of the forest, and to view, receive, and enroll the attachments and presentments of all manner of trespasses of vert and veni- son In the forest. Manw. c. G, { 5.

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## VERDICT.

In practice. The formal and unanimous decision or fluding of a jury, Im- paneled and sworn for the trial of a cause, upon the matters or questions duly submitted to them upon the trial.

The word “verdict” has u well-defined signi- fication in law. it means the decision of a jury, and it never means the decision of a court or a referee or a commissioner. In common lan- guage, the word "verdict'’ is sometimes used in a more extended sense, but in law it is always used to mean the decision of a jury ; and we must suppose that the legislature intended to use the word as it is used in law. Kemer v. Petigo, 25 Kan. 056.

—Adverse verdict. Where a party, appealing from an allowance of damages by commission- ers, recovers a verdict in his favor, but for a less amount of damages than had been originally allowed, such verdict is advene to him, within the meaning of his undertaking to pay costs if the verdict should be adverse to him. Hamblin v. Barnstable County, 10 Gray (Mass.) 250— False verdict. An untrue verdict. Formerly, if a jury gave a false verdict, the party injur- ed by it might sue out and prosecute a writ of attaint against them, either at common law or on the statute 11 Hen. VII. c. 24, at his election, for the purpose of reversing the judg- ment and punishing the jury for their verdict ; but not where the jury erred merely in point of law, if they found according to the judge's di- rection. The practice of setting aside verdicts and granting new trials, however, so superseded the use of attaints that there is no instance of one to be found in the books of reports later than in the time of Elizabeth, and it was alto- gether abolished by 6 Geo. IV. c. 50, 1 00. Wharton.— General verdict. A verdict where- by the jury find either for the plaintiff or for the defendant in general terms ; the ordinary form of a verdict. Glenn v. Snmuer. 132 1'. S. 152, 10 Sup. Ct. 41. 33 L. Ed. 301 ; Settle v. Alison. 8 Ua. 201, 52 Am. Dec. 303 ; Childs v. Carpenter, 87 Me. 114, 32 Atl. 780.— Open ver- dict. A verdict of a coroner's jury which finds that the subject “came to his death by means to the jury unknown.” or “came to his death at the bands of a person or persons to the jury unknown,” that is, one which leaves open either the question whether any crime was committed 'or the identity of the criminal— Partial ver- dict. In criminal law, a verdict by which the jury acquit the defendant as to a part of toe accusation and find him guilty as to the residue. State v. McGee, 55 S. C. 247, 33 S. E. 353. <4 Am. St. Rep. 741 ; U. 8. v. Watkins, 28 Fed. Cas. 419— Privy verdict. One given alter the judge haa left or adjourned the court, and the jury, being agreed, in order to be delivered from their confinement, obtain leave to give their ver- dict privily to the judge out of court. Such a verdict is of no force unless afterwards affirmed by a public verdict given openly in court.

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This practice is now superseded by that of render- ing a sealed verdict. See Young v. Seymour, 4 Neb. 8!). — Public verdict. A verdict openly delivered by the jury in court. Withee v. Uowe. 45 Me. 571.— Quotient verdict. A money ver- dict the amount of which is fixed by the follow- ing process: Each juror writes down the sum he wishes to award by the verdict, and these amounts are all added together, and the total is divided by twelve, (the number of jurors,) and the quotient stands as the verdict of the jury by their agreement. See Hamilton v. Owego Water Works, 22 App. Div. 573, 48 N. Y. Supp. 106; Moses v. Railroad Oo.. 3 Misc. Rep. 322. 23 N. Y. Supp. 23. — Sealed verdict. See Sealed.— Special verdict. A special finding of the facts of a case by a jury, leaving to the court the application of the law to the facta thus found. 1 Arcbb. Pr. K. B. 213: 3 Bl. Comm. 377; Statler v. U. 8.. 157 U. S. 277. 15 Sup. Ct. 616. 39 L. Ed. 700 ; Day v. Webb. 28 Conn. 144 ; Wallingford v. Dunlap, 14 Pa. 32 : McCormick v. Royal Ins. Co., 103 Pa. 184, 21* Atl. 747— Verdict subject to opinion • t court. A verdict returned by the jury, the entry of judgment upon which is subject to the determination of points of law reaeryed by the court upon the trial.

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**[Scripture] — Scripture**

**[Zechariah 8:16, KJV]**

These are the things that ye shall do; Speak ye every man the truth to his neighbour; execute the judgment of truth and peace in your gates:

Why: The entry's own maxim: 'veredictum, quasi dictum veritatis' — the verdict is the dictum of truth. Zechariah 8:16 commands the substance: 'execute the judgment of truth' — judgment rendered as truth. VEREDICTUM left ba...

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) The jury's guilty verdict against Tom Robinson in To Kill a Mockingbird — returned despite Atticus's demolition of the prosecution's evidence — the formal, unanimous decision of the jury as the entry defines it, and what such a decision can cost. (paraphrase)

Why: The entry defines the verdict as the formal unanimous decision of the jury upon the matters submitted; the novel's verdict scene is the archetypal dramatization of a jury's decision and its moral weight.

## VEREBOT.

Sax. In old records. A packet-boat or transport vessel. Cowell.

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## VEREDICTUM.

L. Lat In old English law. A verdict; a declaration of the truth of a matter in Issue, submitted to a jury for trial.

Veredletum, quasi dictum veritatis; ut judicium quasi juris dictum. Oo. Litt 226. The verdict Is, as It were, the dictum of truth; as the judgment is the dictum of law.

VERGE, or VERGE. In English law. The compass of the royal court which bounds the jurisdiction of the lord steward of the household; It seems to have been twelve miles about Britt. 68. A quantity of land from fifteen to thirty acres. 28 Edw. I. Al- so a stick, or rod,

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whereby one is admitted tenant to a copyhold estate. Old Nat Brev. 17.

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## VERGELT.

In Saxon law. A mulct or fine for a crime. See Webeoild.

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**[Scripture] — Scripture**

**[Exodus 21:22, KJV]**

If men strive, and hurt a woman with child, so that her fruit depart from her, and yet no mischief follow: he shall be surely punished, according as the woman's husband will lay upon him; and he shall pay as the judges determine.

Why: VERGELT = a mulct or fine for a crime. Exodus 21:22 shows the fine in operation: the offender 'shall pay as the judges determine' — a penal sum assessed by authority for wrongdoing, the mulct's own form.

## VERGERS AD XHOPIAM.

L. Lat In

Scotch law. Verging towards poverty; in declining circumstances. 2 Karnes, Eq. 8.

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**[Scripture] — Scripture**

**[Proverbs 6:10-11, KJV]**

Yet a little sleep, a little slumber, a little folding of the hands to sleep: So shall thy poverty come as one that travelleth, and thy want as an armed man.

Why: 'Verging towards poverty; in declining circumstances.' Proverbs 6:10-11 describes poverty's approach in the same terms — poverty coming 'as one that travelleth' upon the sluggard. Borderline: the entry is a Scots-law…

## VERGERS.

In English law. Officers who entry white wands before the justices of either bench. Cowell. Mentioned In

Fleta, as officers of tbe king’s court, who op- pressed the' people by demanding exorbitant fees. Fleta, lib. 2, c. 38.

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## VERIFICATION.

In pleading. A cer- tain formula with which all pleadings con- taining new affirmative matter must con- clude, being in itself an averment that the party pleading. is ready to establish the truth of what he has set forth.

In practice. The examination of a writ- ing for the purpose of ascertaining its truth; or a certificate or affidavit that it is true.

"Verification” is not identical with "authen- tication.” A notary may verify a mortgagee’s written statement of the actual amount of his claim, but need not authenticate the act by his seal. Ashley v. Wright, 19 Ohio St. 291.

Confirmation of the correctness, truth, or authenticity of a pleading, account, or other

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paper, by an affidavit, oath, or deposition. See McDonald v. Rosengacten, 134 111. 128, 25 N. E. 429 ; Summerfleld v. Phoenix Assur. Co. (C. O.) 65 Fed. 296; Patterson v. Brook- lyn, 6 App. Div. 127, 40 N. Y. Supp. 581.

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**[Scripture] — Scripture**

**[1 Thessalonians 5:21, KJV]**

Prove all things; hold fast that which is good.

Why: VERIFICATION = the examination of a writing 'for the purpose of ascertaining its truth.' 1 Thessalonians 5:21 states the principle: 'prove all things' — test, verify, then hold fast. Borderline: general principle, spe...

## VERIFY.

To confirm or substantiate by oath ; to show to be true. Particularly used of making formal oath to accounts, petitions, pleadings, and other' papers.

The word “verify” sometimes means to confirm and substantiate by oath, and some- times by argument When used in legal proceedings it is generally employed in the former sense. De Witt v. Hosmer, 3 How. Prac. (N. Y.) 284.

Veritas, a quocunque dicltox, a Deo est. 4 Inst. 153. Truth, by whomsoever pronounced, is from God.

Veritas demons trationis tollit errorem no minis. The truth of tbe description re- moves an error in the name. 1 Ld. Raym. 303.

Veritas habenda est in Jura to re ; Jns- tltia et judicinm in judlce. Truth is the desideratum in a Juror; Justice and judg- ment in a judge. Bract fol. 1856.

Veritas nihil veretur nisi abscond!.

Truth fears nothing but to be hid. 9 Coke, 206.

Veritas nlmiam altercando amittitur.

Truth is lost by excessive altercation. Hob. 344.

Veritas, qna minim o defensatnr op- prim it or ; et qni non improbat, appro- bat. 3 Inst. 27. Truth which is not suffi- ciently defended is overpowered ; and he who does not disapprove, approves.

Veritatem qni non llbere pronunciat proditor est verltatia. 4 Inst. Epil. He who does not freely speak the truth is a be- trayer of truth.

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**[Scripture] — Scripture**

**[Hebrews 6:16, KJV]**

For men verily swear by the greater: and an oath for confirmation is to them an end of all strife.

Why: VERIFY = 'to confirm or substantiate by oath.' Hebrews 6:16 states the oath's office: 'an oath for confirmation is to them an end of all strife' — the confirming oath as the seal of truth, exactly the entry's first se...

## VERITY.

Truth; truthfulness; conform- ity to fact The records of a court “import uncontrollable

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verity." 1 Black, Judgm. | 276.

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**[Scripture] — Scripture**

**[Psalm 15:2, KJV]**

He that walketh uprightly, and worketh righteousness, and speaketh the truth in his heart.

Why: VERITY = truth; truthfulness; conformity to fact. Psalm 15:2 names the truthful man — he 'speaketh the truth in his heart' — truthfulness as the quality the entry defines. Borderline-thin; kept for the exact 'truthful…

## VERNA.

Lat In the civil law. A slave bom in his master’s house.

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**[Scripture] — Scripture**

**[Genesis 14:14, KJV]**

And when Abram heard that his brother was taken captive, he armed his trained servants, born in his own house, three hundred and eighteen, and pursued them unto Dan.

Why: VERNA = a slave born in his master's house. Genesis 14:14 names them in the same terms: Abram's 'trained servants, born in his own house' — the house-born servant, the verna's own description.

## VERSARI.

Lat. In the civil law. To be employed ; to be conversant Versari male in tutela, to misconduct one’s self in a guardianship. Cuivln.

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**[Scripture] — Scripture**

**[Luke 16:1-2, KJV]**

And he said also unto his disciples, There was a certain rich man, which had a steward; and the same was accused unto him that he had wasted his goods: And he called him, and said unto him, How is it that I hear this of thee? give an account of thy stewardship; for thou mayest be no longer steward.

Why: 'Versari male in tutela' = to misconduct oneself in a guardianship — a trust office abused. The parable's steward 'had wasted his goods' and must 'give an account of thy stewardship' — mismanagement of an entrusted of…

## VERSUS.

Lat Against In the title of a cause, the name of the plaintiff is put first followed by the word "versus,” then the defendant’s name. Thus, “Fletcher versus Peck,” or “Fletcher against Peck.” The word is commonly abbreviated "vs.” or

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## VERT.

Everything bearing green leaves in a forest

Also that power which a man has, by royal grant to cut greeu wood in a forest

Also, in heraldry, green color, called “ve- nus” in the arms of princes, and “emerald” in those of peers, and expressed in engrav- ings by lines in bend. Wharton.

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### VERU8.

Lat True; truthful;’ gen- uine; actual; real; Just

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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### VERY LORD AND VERY TENANT.

They that are immediate lord and tenant one to another. Cowell.

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### VESSEL.

A ship, brig, sloop, or other craft used in navigation. The word is more comprehensive than “ship.”

The word "vessel” includes every descrip- tion of water-craft or other artificial contriv- ances used, or capable of being used, as a means of transportation ou water. Rev. 8t

U. 8. § 3 (U. 8. Comp. St 1901, p. 4).

"Vessel,” in the provision of the code of Louisiana that commercial partners are those who are engaged in “carrying personal, prop- erty for hire iu ships or other vessels,” means any structure which is made to float upon the water, for purposes of commerce or war, whether impelled by wind, steam, or oars. Chaffe v. Ludeling, 27 La. Ann. 607.

—Foreign vessel. A vessel owned by resi- dents in, or sailing under the flag of, a foreign nation. “Foreign vessel.” under the embargo act of January, 1808, means a vessel under tbe flag of a foreign power, and not a vessel in which foreigners domiciled in the United States have an interest. The Sally, 1 Gall. 58. Fed. Cas. No. 12.257.— Public vessel. One owned and used by a nation or government for its public service, whether in its navy, its reve- nue service, or otherwise.

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### VEST.

To accrue to ; to be fixed ; to take effect ; to give a fixed and indefeasible right. An estate Is vested in possession when there exists a right of present enjoyment ; and an estate Is vested iu Interest when there is a

present fixed right of future enjoyment Fearae, Rem. 2.

To clothe with possession ; to deliver full possession of land or of an estate; to give seisin; to enfeoff. Spelman.

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## T

### TESTA.

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The crop on the ground. Cow- ell.

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# V

**VESTED.**

Accrued ; fixed ; settled ; ab- solute; having the character or giving the rights of absolute ownership ; not contingent ; not subject to be defeated by a condition precedent. See Scott v. West, 63 Wis. 529, 24 N. W. 161 ; McGillls v. McGillls, 11 App. Div. 359, 42 N. Y. Supp. 924 ; Smith v. Pros- key, 39 Misc. Rep. 383, 79 N. Y. Supp. 851.

— Tested devise. See Devise.— Vested es- tate. Any estate, property, or interest is call- ed “vested,” whether in possession or not, which is not subject to any condition precedent and unperformed. The interest may be either a pres- ent and immediate interest, or it may be a fu- ture but uncontingent, and therefore transmis- sible, interest. Brown. See Tayloe v. Gould, 10 Barb. (N. Y.) 388; Flauner v. Fellows, 206 111. 136, 68 N. E. 1057; Tindall v. Tindall. 167 Mo. 218, 66 S. W. 1092 ; Ward v. Edge, 100 Ky. 757, 89 S. W. 440.—' Vested in interest. A legal term applied to a present fixed right of future enjoyment; as reversions, vested remainders, such executory devises, future uses, conditional limitations, and other future interests as are not. referred to, or made to depend on, a pe- riod or event that is uncertain. Wharton. See Smith v. West, 168 111. 337 ; Hawley v. James, 5 Paige (N. Y.) 460; Gates v. Seibert, 157 Mo. 254, 57 S. W. 1065, 80 Am. St. Hep. 625.— Vested in possession. A legal term applied to a right of present enjoyment actually exist- ing.—Vested interest. A future interest is vested when there is a 'person in being who would have a right, defeasible or indefeasible, to the immediate possession of the property, upon the ceasing of the intermediate or prece- dent interest. Civil Code Cal. f 694. See Al- lison v. Allison, 101 Va. 537, 44 S. E. 904, 03

L. K. A. 920; Hawkins v. Bohling, 168 111. 214, 48 N. E. 94 ; Stewart v. liarriman, 56

N. II. 25, 22 Am. Uep. 408; Bunting v. Speek, 41 Kan. 424, 21 Pac. 288, 3 L. K. A. 690.— Vested legacy. A legacy is said to be vested when the words of the testator making the be- quest convey a transmissible interest, whether present or future, to the legatee in the legacy. Thus a legacy to one to be paid when he at- tains the age of twenty-one years is a vested legacy, because it is given unconditionally and absolutely, and therefore vests an immediate in- terest in the legatee, of which the enjoyment only is deferred or postponed. Brown. See Magoffin v. Patton, 4 Rawle (Pa.) 113 ; Tal- madge v. Seaman, 85 Hun, 242, 32 N. Y. Supp. 906; Rubencane v. McKee. 6 Del. Ch. 40, 6 Ati. 639.— Vested remainder. See Remain- der.— Vested rights. In constitutional law. Rights which have so completely and definitely accrued to or settled in a i>erson that they are not subject to be defeated or canceled by the act of any other private person, and which it is right and equitable that the government should recognize and protect, as being lawful in them- selves, and settled according to the then cur- rent rules of law, and of which the individual could not be

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deprived arbitrarily without injus- tice, or of which he could not justly be deprived otherwise than by the established methods of procedure and for the public welfare. See t’as- sard v. Tracy, 52 I .a. Ann. 835. 27 South. 3t!8, 49 L. U. A. 272 ; Stimson Land Co. v. Itawson

(C. C.) 62 Fed. 429; Grinder v. Nelson, 9 Gill. (Md.) 309, 52 Am. Dec. 694; Moore v. State, 43 N. J. Law, 243, 39 Am. Itep. 558.

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## VESTIGIUM.

Lat. In the law of evi- dence, a vestige, mark, or ’sign ; a trace, track, or Impression left by a physical object, Fleta, 1. 1, c. 25. f 6.

5e apparatus — Not carried into the 5th edition (1979).

## VESTING ORDER.

In English law. An order which may be granted by the chancery division of the high court of Justice, (and formerly by chancery,) passing the legal es- tate in lieu of a conveyance. Commissioners also, under modern statutes, have similar powers. St 15 & 16 Viet c. 55 ; Wharton.

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## VESTRY.

In ecclesiastical law. The place in a church where the priest's vestures are deposited. Also an assembly of the min- ister, church- wardens, and parishioners, usu- ally held in the vestry of the church, or in a building called a "vestry-hall,” to act upon business of the church. Mozley & Whitley.

— Vestry oess. A rate levied in Ireland for parochial purposes, abolished by St. 27 Viet, c. 17.— Vestry-clerk. An officer appointed to attend vestries, and take an account of tbeir proceedings, etc.— Vestry-men. A select num- ber of parishioners elected in large and popu- lous parishes to take care of the concerns of the parish ; so called because they used ordi- narily to meet in the vestry of the church. Cowell.

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## VESTURA.

A crop of grass or corn. Also a garment; metaphorically applied to a possession or seisin.

5e apparatus — Not carried into the 5th edition (1979).

## VESTURA TERRS.

In old English law. The vesture of the land; that Is, the corn, grass, underwood, sweepage, and the like. Co. Lltt 46. See Simpson v. Coe, 4 N. IL 301.

5e apparatus — Not carried into the 5th edition (1979).

## VESTURE.

In old English law. Profit of land. “How much the vesture of an acre Is worth.” Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## VESTURE OF LAND.

A phrase In- cluding all things, trees excepted, which grow upon the surface of the land, and clothe it externally. Ham. N. P. 151.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 85:12, KJV]**

Yea, the LORD shall give that which is good; and our land shall yield her increase.

Why: VESTURE OF LAND = all things growing on the land's surface — the land's yield, its profit. Psalm 85:12: 'our land shall yield her increase' — the land's increase as its vesture. The other three VESTURA entries left ba...

## VETERA STATUTA.

Lat Ancient statutes. The English statutes from Magna Charta to the end of the reign of Edward

II. are so called ; those from the beginning of the reign of Edward III. being contra- distinguished by the appellation of “Nova Statuta.” 2 Reeve, Eng. Law, 85.

5e apparatus — Not carried into the 5th edition (1979).

## VETITUM NAMIUM.

L. Lat. Where the bailiff of a lord distrains beasts or goods of another, and the lord forbids the bailiff to deliver them when the sheriff comes to make replevin, the owner of the cattle may demand satisfaction in placitum de vetito namio. 2 Inst. 140; 2 Bl. Comm. 148.

5e apparatus — Not carried into the 5th edition (1979).

## VETO.

Eat. I forbid. The veto-power is a power vested in the executive officer of some governments to declare his refusal td assent to any bill or measure which has been passed by the legislature. It is either ab- solute or qualified, according as the effect of its exercise is either to destroy the bill final- ly, or to prevent its becoming law unless again passed by a stated proportion of votes or with other formalities. Or the veto may be merely suspensive. See People v. Board of Councllmen (Super. Buff.) 20 N. Y. Supp. 51.

—Pocket veto. Non-approval of a legislative act by the president or state governor, with the result that it fails to become a law, not by a written disapproval, (a veto in the ordinary form.) but by remaining silent until the adjourn- ment of the legislative body, when that ad- journment takes place before the expiration of the period allowed by the constitution for the examination of the bill by the executive.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. art. I, § 7, cl. 2 — presentment, return with objections, and override]**

The veto power the entry describes is the Presentment Clause at work: 'Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President,' whose return with objections the two houses may override by two-thirds.

Why: The body defines absolute/qualified/suspensive and pocket vetoes with one state case and never names the

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constitutional source; the footnote supplies it verbatim — the actual authority behind the practice described —...

## VETU8 JUS.

Lat. The old law. A term used in the civil law, sometimes to designate the law of the Twelve Tables, and sometimes merely a law which was in force previous to the passage of a subsequent law. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## VEX.

To harass, disquiet, annoy; as by repeated litigation upon the same facts.

5e apparatus — Carried into the 5th edition (1979).

## VEX AM.

Lat To be harassed, vexed, or annoyed; to be prosecuted; as in the max- im, Nemo debet bis vexart pi-o tina et eadem causa, no one should be twice prosecuted for one and the same cause.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: U.S. Const. amend. V — Double Jeopardy Clause]**

The maxim the body quotes — 'no one should be twice prosecuted for one and the same cause' — is codified in American law as the Double Jeopardy Clause: 'nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb.'

Why: The body states the Latin maxim with NO authority at all; the footnote attaches it to its real American constitutional home, quoted verbatim. Genuine bridge from maxim to controlling text, not echo.

## VEXATA QUAE8TIO.

Lat. A vexed question ; a question often agitated or dis- cussed, but not determined or settled; a ques- tion or point which haB been differently de- termined, and so left doubtful. 7 Coke, 46 b; 3 Burrows, 1547.

5e apparatus — Not carried into the 5th edition (1979).

## VEXATION.

The Injury or damage which is suffered in consequence of the tricks of another.

5e apparatus — Carried into the 5th edition (1979).

## VEXATIOUS.

A proceeding is said to be vexatious when the party bringing it is not acting bona fide, and merely wishes to annoy or embarrass his opponent, or when it is not calculated to lead to any practical result Such a proceeding is often described as “friv- olous and vexatious,” and the court may stay it on that ground. Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## VEXED QUESTION.

A question or point of law often discussed or agitated, but not determined or settled.

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5e apparatus — Carried into the 5th edition (1979).

## VI AUT CLAM.

Lat. In the civil law. By force or covertly. Dig. 43, 24.

5e apparatus — Not carried into the 5th edition (1979).

## VI BONORUM RAPTORUM.

Lat. In the civil law. Of goods taken away by force. The name of an action given by the praetor as a remedy for the violent taking of another's property. Inst 4, 2; Dig. 47, 8.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 61:8, KJV]**

For I the LORD love judgment, I hate robbery for burnt offering; and I will direct their work in truth, and I will make an everlasting covenant with them.

Why: The action 'of goods taken away by force' — the remedy for violent taking, robbery. The LORD speaks the doctrine: 'I hate robbery' — divine hatred of the very wrong the action redresses.

## VI ET ARMIS.

Lat With force and arms. See Trespass.

5e apparatus — Not carried into the 5th edition (1979).

## VXA.

Lat In the civil lew. Way; a road; a right of way. The right of walking, riding, and driving over another's land. Inst.

2, 3, pr. A species of rural servitude, which included iter (a footpath) and actus, (a drift-way.)

In old English law. A way; a public road; a foot horse, and cart way. Co. Lltt.

56 a.

— Via ordinaria ; via executive. In the law a

of Louisiana, the former phrase means in the ordinary way or by ordinary process, the latter means by executory process or in an executory proceeding. A proceeding in a civil action is “ordinary” when a citation takes place and all the delays and forms of law are observed ; "ex- ecutory” when seizure is obtained against the property of the debtor, without previous cita- tion. in virtue of an act or title importing con- fession of judgment, or in other cases provided by law. Code Prac. La. 1839, art. 98. — Via publics. In the civil law. A public way or road, the land itself belonging to the public. Dig. 43, 8, 2. 21.— Vl» regia. In English law. The king’s highway for all men. Co. I.itt. alia. The highway or common road, called “the king’s” highway, because authorized by him and under his protection. Cowell.

Via antique via eat tuta. The old way

is the safe way. Manning v. Manning’s Ex’rs, 1 Johns. Ch. (N. Y.) 527, 530.

Via trita eat tutissima. The trodden path Is the safest Broom, Max. 134; 10 Coke, 142.

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5e apparatus — Not carried into the 5th edition (1979).

## VIABILITY.

Capability of living. A term used to denote the power a new-born child possesses of continuing its Independent existence.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 2:7, KJV]**

And the LORD God formed man of the dust of the ground, and breathed into his nostrils the breath of life; and man became a living soul.

Why: VIABILITY = the power of continuing independent existence — capability of living. Genesis 2:7 is the archetypal animation: the breath of life breathed in, and man 'became a living soul.' Borderline: the entry is medic…

## VIABLE.

Capable of life. This term is . applied to a newly-born infant, and especially to one prematurely born, which is not only born alive, but in such a state of organic de- velopment as to make possible the continu- ance of its life.

5e apparatus — Carried into the 5th edition (1979).

## VL2B SER VITUS.

Lat. A right of way over another’s land.

5e apparatus — Not carried into the 5th edition (1979).

## VIAOERE RENTE.

In French law. A rent-charge or annuity payable for the life of the annuitant.

5e apparatus — Not carried into the 5th edition (1979).

## VIAND ER.

In old English law. A re- turning officer. 7 Mod. 13.

5e apparatus — Not carried into the 5th edition (1979).

## VIATOR.

Lat. In Roman law. A suin- moner or apparitor ; an officer who attended on the tribunes and cedlles.

5e apparatus — Not carried into the 5th edition (1979).

## VICAR.

One who performs the functions of another; a substitute. Also the Incumbent of an appropriated or impropriated ecclesias- tical benefice, ns distinguished from the In- cumbent of a non-appropriated benefice, who

is called a “rector.” Wharton. See Pinder v. Barr, 4 El. & Bl. 115.

—Vicar general. An ecclesiastical officer who assists the archbishop in the discharge of his office.

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5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Isaiah 53:5, KJV]**

But he was wounded for our transgressions, he was bruised for our iniquities: the chastisement of our peace was upon him; and with his stripes we are healed.

Why: VICAR = one who performs the functions of another; a substitute. Isaiah 53:5 is the vicarious act itself — wounded 'for our transgressions,' the chastisement of our peace upon him — substitution standing where another...

## VICARAGE.

In English ecclesiastical law. The living or benefice of a vicar, as a parsonage is of a parson. 1 Bl. Conim. 387, 38R

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## VICARIAI, TITHES.

Petty or small tithes payable to the vicar. 2 Steph. Comm.

. 681.

VICARXO, etc. An ancient writ for a spiritual person imprisoned, upon forfeiture of a recognisance, etc. Keg. Orlg. 147.

Vionrius non hsbet vicarium. A deputy has not [cannot have] a deputy. A delegated power cannot be again delegated. Broom, Max. 830.

5e apparatus — Not carried into the 5th edition (1979).

## VICE.

A fault, defect, or imperfection. In the civil law, redhibitory vices are such faults or imperfections in the subject-matter of a sale as will give the purchaser the right to return the article and demand back the price.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 22:20, KJV]**

But whatsoever hath a blemish, that shall ye not offer: for it shall not be acceptable for you.

Why: VICE in the civil law = redhibitory vices, faults in the thing sold giving the right to return it. Leviticus 22:20 states the blemish rule: 'whatsoever hath a blemish... shall not be acceptable' — the defect that defe...

## VICE.

Lat. In the place or stead. Vice mea, in my place.

— Vice-admiral. An officer in the (English) navy next in rank after the admiral.— Vice-admiralty courts. In English law. Courts established in the king’s possessions beyond the seas, with jurisdiction over maritime causes, in- cluding those relating to prise. 3 Steph. Comm. 435 ; 3 Bl. Comm. 60. — Vice-chamberlain. A great officer under the lord chamberlain, who, in the absence of the lord chamberlain, has the control and command of

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the officers appertaining to that part of the royal household which is called the "chamber." Cowell.— Vice-clMuicel- ,lor. See Chancelxob.— ' Vice-comes. A title formerly bestowed on the sheriff of a county, when he was regarded as the deputy of the count or eari. Co. Litt. 168.—' Vlce-comitissa. In old English law. A viscountess. Spelman. —Vice commercial agent. In the consular service of the United States, this is the title of a consular officer who is substituted tem- porarily to fill the place of a commercial agent when the latter is absent or relieved from duty. Rev. St. U. S. | 1674 (U. S. Comp. St. 11)01, p. 114!)).— Vice-constable of England. An ancient officer in the time of Edward -IV.— Vice consul. In the consular service of the United States this term denotes a consular officer who is substituted temporarily to fill the place of a consul who is absent or relieved from duty. Rev. St. U. S. i 1674 (U. S. Comp. St. 1001, p. 114!)); Schunior v. Russell, 83 Tex. S3, 18

S. Wr. 484. In international law generally the term designates a commercial agent who acts In the place or stead of a consul or who has charge of a portion of his territory. In old English law. it meant the deputy or substitute of an earl (comet), who wns anciently called “con- sul.” answering to the more modern "rice- come*." Burrill. — ' Vioe-dominns. A sheriff. — Vice-domiuus episcopi. The vicar general or commissary of a bishop. Blount. — Vice-gerent. A deputy or lieutenant.— Viee-Judex. In old Lombardlc law. A deputy judge. — Vice-marshal. An officer who was appointed to assist the earl marshal.— Vice-president of tbe United States. The title of the second

officer, in point of rank, in the executive branch of the government of the United States.— Vice- principal. See Pbincipai..— Vice versa. Conversely ; in inverted order ; in reverse manner.

The sheriff hath not sent the writ. Tbe form of continuance on the record after issue and before trial. 7 Mod. 349; 11 Mod. 281.

5e apparatus — Not carried into the 5th edition (1979).

## VICEROY.

A person clothed with au- thority to act in place of the king; hence, the usual title of the governor of a dependency.

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**[Scripture] — Scripture**

**[Genesis 41:40-41, KJV]**

Thou shalt be over my house, and according unto thy word shall all my people be ruled: only in the throne will I be greater than thou. And Pharaoh said unto Joseph, See, I have set thee over all the land of Egypt.

Why: VICEROY = one clothed with authority to act in place of the king. Genesis 41:40-41 is the viceroy's commission in scripture's own words: Joseph set 'over all the land of Egypt,' all ruled by his word, 'only in the thr...

## VICINAGE.

Neighborhood; near dwell- ing; vicinity. 2 Bl. Comm. 33; Cowell. In modern usage, it means the county where a trial is had, a crime committed, etc. See State v. Crinklaw, 40 Neb. 759, 59 N. W. 370; Convers v. Railway Co., 18 Mich. 468; Tay- lor v. Gardiner, 11 R. I. 184; Ex

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parte Mc- Neeley, 36 W. Va. 84, 14 S. E. 436, 15 L. R.

A. 226, 32 Am. St. Rep. 831,

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## VICINETUM.

The neighborhood; vici- nage ; the venue. Co. Litt. 1856.

Vidal viciniora pmmmutar anise.

4 Inst. 173. Persons living in the neighbor- hood are presumed to know the neighbor- hood.

5e apparatus — Not carried into the 5th edition (1979).

## VICIOUS INTROMISSION.

In Scotch law. A meddling with the movables of a de- ceased, without confirmation or probate of his will or other title. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## VICIS ET VENELLIS MUND ANDES.

An ancient writ against the mayor or bailiff of a town, etc., for the dean keeping of their streets and lanes. Reg. Orlg. 267.

VICOUKTIEL, or VICONTIEL. Any- thing that belongs to the sheriffs, as vioontiel write; i. e., such as are triable in the sher- iff's court As to vicontlel rents, see St 3 lc 4 Wm. IV. c. 99, ii 12, 13, which places them under the management of the commis- sioners of tbe woods and forests. Cowell.

— Vicountiel Jurisdiction. That jurisdiction which belong* to the officers of a county; as- sheriffs, coroners, etc.

5e apparatus — Not carried into the 5th edition (1979).

## VICTUALLER.

In English law. A per- son authorized by law to keep a house of en- tertainment for the public; a publican. 9 Adol. & E. 423.

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**[Scripture] — Scripture**

**[Luke 10:34-35, KJV]**

And went to him, and bound up his wounds, pouring in oil and wine, and set him on his own beast, and brought him to an inn, and took care of him. And on the morrow when he departed, he took out two pence, and gave them to the host, and said unto him, Take care of him; and whatsoever thou spendest more, when I come again, I will repay thee.

Why: VICTUALLER = the keeper of a house of entertainment for the public. The parable's 'host' receives the wounded traveller at the inn and is charged with his care — the innkeeper's office in the same form. Borderline-thi…

## VICTUS.

Lat. In the civil law. Sus- tenance; support; the means of living.

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5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Matthew 6:11, KJV]**

Give us this day our daily bread.

Why: VICTUS = sustenance; support; the means of living. The petition for 'our daily bread' is the prayer for victus itself — the means of living asked day by day.

## VTDAME.

In French feudal law. Orig- inally, an officer who represented the bishop, us the viscount did the count. In process of time, these dignitaries erected their offices in- to fiefs, and became feudal nobles, such as tbe vidame of Chartres. Rheims, etc., continuing to take their titles from the seat of the blahop whom they represented, although the lands held by virtue of their fiefs might be Bltuated elsewhere. Brande ; Burrlll.

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## VIDE.

Lat. A word of reference. Fide ante, or vide supra, refers to a previous pas- sage, i tide post, or 'vide infra, to a subsequent passage, In a book.

Videbia m uepe oommitti qua aaepe

Ttudieutur. 3 Inst. Epll. You will see these things frequently committed which are frequently punished.

5e apparatus — Not carried into the 5th edition (1979).

## VIDELICET.

Lat The words “to-wlt,” or "that Is to say,” so frequently used In pleading, are technically called the "videli- cet" or “scilicet;" and when any fact alleged In pleading is preceded by, or accompanied with, these words, such fact 1b, in the lan- guage of the law, said to he “laid under a videlicet." The use of the videlicet Is to point out, particularize, or render more spe- cific that which has been previously stated In general language only; also to explain that which Is doubtful or obscure. Brown. See Stnkeley v. Butler, Hob. 171 ; Gleason ▼. McVickar, 7 Cow. (N. Y.) 43; SulUvan v. State. 67 Miss. 346. 7 South. 275; Clark v. Employers’ Liability Assur. Co., 72 Vt 458, 48 Atl. 639; Com. v. Quinlan, 153 Mass. 483, 27 N. B. 8.

Vldatur qul (Urdus et autu a# post fairs alienation. It seems that a deaf and dumb man cannot alienate. Brower v. Fish- er, 4 Johns. Ch. (N. Y.) 444; Brooke, Abr. “Eschete,” pi. 4.

5e apparatus — Not carried into the 5th edition (1979).

## VIDIMUS.

An inspeximus, (Q. «.) Bar- ring, Ob. SL 5.

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## VIDUA REGIS.

Lat In old English law. A king's widow. The widow of a ten- ant in capite. So called, because

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she was not allowed to marry a second time without the king's permission; obtaining her dower also from the assignment of the king, and having the king for her patron and defender. Spel- man.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Exodus 22:22, KJV]**

Ye shall not afflict any widow, or fatherless child.

Why: The king's widow — the widow as a legal person with dower rights and the king for patron. Exodus 22:22 states the widow's protected status in Mosaic law: 'ye shall not afflict any widow' — widowhood as a guarded legal...

## VTDUITATIS PROFESSIO.

Lat The making a solemn profession to live a sole and chaste woman.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Numbers 30:9, KJV]**

But every vow of a widow, and of her that is divorced, wherewith they have bound their souls, shall stand against her.

Why: The solemn profession to live a sole and chaste woman — a widow's vow binding her soul. Numbers 30:9 is the law of exactly that: 'every vow of a widow... wherewith they have bound their souls, shall stand' — the widow...

## VIDUITY.

Widowhood.

5e apparatus — Not carried into the 5th edition (1979).

## VIE.

Fr. Life; occurring In the phrases cestui gue vie, pur autre vie, etc.

5e apparatus — Carried into the 5th edition (1979).

## VIEW.

The right of prospect; the out- look or prospect from the windows of one's house. A species of urban servitude which prohibits the obstruction of such prospect. 3 Kent, Comm. 448.

We understand by view every opening which may more or less facilitate the means of looking out 'of a building. Lights are

those openings which are made rather for the admission of light than to look out of. Civ. Code La. art. 715.

Also an inspection of property in contro- versy, or of a place where a crime has been committed, by the Jury previously to the trial. See Garbarsky v. Simkin, 36 Mlsc. Rep., 195, 73 N. Y. Supp. 199; Wakefield v. Railroad Co., 63 Me. 385 ; Lancaster County v. Holyoke, 37 Neb. 328, 55 N. W. 950, 21

L. B. A. 394.

—View and delivery. When a right of com- mon is exercisable not over the whole waste, but

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only in convenient places indicated from t>m» to time by the lord of the manor or his bailiff, it is said to be exercisable after “view and de- livery." Elton, Commons, 233.— View, de- mand of. In real actions, the defendant was entitled to demand a view, that is, a sight of the thing, .in order to ascertain its identity and oth- er circumstances. As, if a real action were brought against a tenant, and such tenant did not exactly know what land it was that the demandant asked, then he might nrnv the view, which was that he might see the land which the demandant claimed. Brown. — Vi«w of an in- quest. A view or inspection taken by a jury, summoned upon tin inquisition or inquest, of the place or property to which the inquisition or inquiry refers. Brown.— View of frank- pledge. In English law. An examination to see if every freeman above twelve years of age within the district had taken the oath of al- legiance. and found nine freeman nled-res for his peaceable demeanor. 1 Reeve, Eng. Law, 7.

5e apparatus — Carried into the 5th edition (1979).

## VIEWERS.

Persons who are appointed by a court to make an investigation of cer- tain matters, or to examine a particular lo- cality, (as, the proposed site of a new road,) and to report to the court the result of their Inspection, with their opinion on the same.

In old prsstlM. Persons appointed un- der writs of view to testify the view. Rose. Real Act. 253.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 13:2, KJV]**

Send thou men, that they may search the land of Canaan, which I give unto the children of Israel: of every tribe of their fathers shall ye send a man, every one a ruler among them.

Why: VIEWERS = persons appointed to examine a locality and report to the court. The twelve sent to 'search the land of Canaan' are the archetypal viewers — appointed, sent to view, returning with their report — the same of...

## VIF-GAGE.

L. Fr. In old English law. A vivum vadium or living pledge, as distin- guished from a mortgage or dead pledge. Properly, an estate given as security for a debt, the debt to be satisfied out of the rents, issues, and profits.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:6, KJV]**

No man shall take the nether or the upper millstone to pledge: for he taketh a man's life to pledge.

Why: VIF-GAGE = the living pledge, a form of vadium. Deuteronomy 24:6 is the Mosaic pledge-law: the taking of a pledge bounded by mercy — 'he taketh a man's life to pledge' — the pledge's own scripture. Companion to VADIUM...

## VIGIL.

In ecclesiastical law. The. eve or next day before any solemn feast.

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**[Scripture] — Scripture**

**[Exodus 12:42, KJV]**

It is a night to be much observed unto the LORD for bringing them out from the land of Egypt: this is that night of the LORD to be observed of all the children of Israel in their generations.

Why: VIGIL = the eve before a solemn feast. Exodus 12:42 names the archetypal vigil-night: the Passover night 'to be much observed unto the LORD' — the solemn night-watch before the feast of deliverance. Borderline: the en...

## VIGILANCE.

Watchfulness ; precau- tion ; a proper degree of activity and prompt- ness In pursuing one’s rights or guarding them from Infraction, or In making or dis- covering opportunities for the enforcement of one's lawful claims and demands. It Is the opposite of laches.

Vigilantlbus et non dormientibua jura aubvanlunt. The laws aid those who are vigilant, not those who sleep upon their rights. 2 Inst. 690 ; Merchants' Bank of Newburyport, President, etc., of, v. Steven- son. 7 Allen (Mass.) 493; Broom, Max. 892.

5e apparatus — Carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Proverbs 10:4, KJV]**

He becometh poor that dealeth with a slack hand: but the hand of the diligent maketh rich.

Why: VIGILANCE = watchfulness, diligence in pursuing one's rights — the opposite of laches; 'the laws aid the vigilant.' Proverbs 10:4 states the diligence doctrine: 'the hand of the diligent maketh rich' — vigilance rewar...

## VIGOR.

Lat. Strength : virtue ; force ; efficiency. Proprio vigore, by Its own force.

vns ET MODIS. Lat. In the ecclesias- tical courts, service of a decree or citation viis et modis, i. e., by all “ways and means” likely to affect the party with knowledge of its contents. Is equivalent to substituted service in the temporal courts, and is op- posed to personal service. Philllm. Ecc. Law, 12r.8, 1283.

5e apparatus — Not carried into the 5th edition (1979).

## VILL.

In old English law, this word was used to signify the parts into which a hun- dred or wapentake was divided. It also sig- nifies a town or city.

— Demi-vill. A town consisfing of five free- men, or frank-pledges. Spelman.

VUla eat ex plnribns mansionlbns vi- ctuata, et collata ex pluribus vicinia, et anb appellatione villaram continentiir bnrgi et cixitatea. Co. Lltt. 115. Vlll is a neighborhood of many mansions, a collec- tion of many neighbors, and under the term of “vills” boroughs and cities are contained.

5e apparatus — Carried into the 5th edition (1979).

## VILLA REGIA.

Lat. In Saxon law. A royal residence. Spelman.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## VILLAGE.

Any small assemblage of houses for dwellings or business, or both, in the country, whether they are situated upon regularly laid out streets and alleys or not, constitutes a village. Hebert v. Lavalle, 27 111. 448.

In some states, this is the legal description of a class of municipal corporations of smal- ler population than “cities” and having a simpler form of government, and correspond- ing to “towns” and “boroughs,” as these terms are employed elsewhere.

5e apparatus — Not carried into the 5th edition (1979).

## VILLAIN.

An opprobrious epithet, im- plying great moral delinquency, and equiv- alent to knave, rascal, or scoundrel. The word is libelous. 1 Bos. & P. 331.

nexed to the manor of land ; a serf. — Villein ■erwices. Base services, such as villeins per- formed. 2 Bl. Comm. 98. They were not, how- ever. exclusively confined to villeinR. Bince they might be performed by freemen, without impair- ing their free condition. Bract, fol. 246.—' VU- lein socage. In feudal and old English law. A species of tenure in which the services to be rendered werp certain and determinate, but were of a base or Bervile nature; i. e., not suitable to a man of free and honorable rank. This was also called “privileged villeinage,” to distinguish it from ‘‘pure villeinage,” in which the services were not certain, but the tenant was obliged to do whatever he was com- manded. 2 Bl. Comm. 61.

5e apparatus — Carried into the 5th edition (1979).

## VILLENAGE.

A servile kind of tenure belonging to lands or tenements, whereby the tenant was bound to do all such services as the lord commanded, or were fit for a vil- lein to do. Cowell. See Villein.

"“Pure vill Onego. A base tenure, where a man holds upon t terms of doing whatsoever is commanded of him, nor knows in the evening what is to be done in the morning, and is al- ways bound to an uncertain service. 1 Steph. Comm. (7th Ed.) 188.

5e apparatus — Not carried into the 5th edition (1979).

## VILLENOU8 JUDGMENT.

A Judg- ment which deprived one of his libera lex, whereby he was discredited and disabled as a Juror or witness; forfeited his goods and chattels and lands for life ; wasted the lands, razed the houses, rooted up the trees, and committed his body to prison. It has be- come obsolete. 4 Bl. Comm. 136; 4 Steph. Comm. 230; 4 Broom & H. Comm. 153. Wharton.

Vim vi repellere Host, modo flat mods- Famine inculpate tntela, non ad sumes- dam vindlctam, led ad propulsandam in* Jurlam. It is lawful to repel force by force, provided it be done with the moderation of blameless defense, not for the purpose of taking revenge, but

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to ward off injury. Co. Litt. 162o.

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**[Scripture] — Scripture**

**[Deuteronomy 19:19, KJV]**

Then shall ye do unto him, as he had thought to have done unto his brother: so shalt thou put the evil away from among you.

Why: The villenous judgment fell upon attainted (perjured) jurors — forfeiture, wasting of lands, prison. Deuteronomy 19:19 is the false-witness law: the corrupt witness suffers what he plotted against his brother — the sa...

# R

## REDUCENDIS.

A writ that lay for the bringing back of the king’s bondmen, that lnuf been carried away by others out of his manors whereto they belonged. Reg. Orlg. 87.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Deuteronomy 23:15-16, KJV]**

Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: He shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.

Why: The writ lay to bring back the king's bondmen carried from his manors — the law of the returned fugitive. Deuteronomy 23:15-16 states the direct scriptural counterpart, and it runs the other way: 'thou shalt not deliv...

# V

## V1NAG1UM.

A payment of a certain quantity of wine lnstend of rent for a vine- yard. 2 Mon. Ang. p. 980.

VTNCULACION . In Spanish law. An entail. Schm. Civil Law, 308.

5e apparatus — Not carried into the 5th edition (1979).

## VILLANUM  SERVITIUM.

In old Eng- lish law. Villein service. Fleta, lib. 3, & 13, S L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## VILLEIN.

A person attached to a man- or, who was substantially In the condition of a slave, who performed the base and ser- vile work upon the manor for the lord, and was. In most respects, a subject of property and belonging to him. 1 Washb. Real Prop. 26.

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—Villein in gross. A villein who was an- nexed to the person of the lord, and transferable by deed from one owner to another. 2 Bl. Comm. 93.— Villein regardant. A villein an-

VINCTTLO. In Spanish law. The bond, chain, or tie of marriage. White, New Re- cop. b. 1, tit. 6, c. 1, 5 2.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Leviticus 25:39, KJV]**

And if thy brother that dwelleth by thee be waxen poor, and be sold unto thee; thou shalt not compel him to serve as a bondservant:

Why: VILLEIN = one substantially in the condition of a slave, performing servile work for the lord. Leviticus 25:39 governs the bondservant's condition — service without compulsion to servitude — the servile state in Mosai...

**[Humanity] — Humanity / Fiction & Film**

**[Sir Walter Scott, Ivanhoe, 1819]**

(paraphrase) Gurth the swineherd in Ivanhoe — born thrall to Cedric of Rotherwood, wearing the brass collar of serfdom — the villein "substantially in the condition of a slave," a subject of property, as the entry defines. (paraphrase)

Why: The entry defines the villein as attached to the manor, in most respects a subject of property; Gurth is the classic fictional villein, collared and transferable.

## VINCULO MATRIMONII.

See A Vin- culo Matbimonii; Divorce.

5e apparatus — Not carried into the 5th edition (1979).

## VINCULUM JURIS.

Lat. In the Ro- man law, an obligation is defined as a rtnen- lum juris, i. e., “a bond of law,” whereby one party becomes or Is bound to another to do something according to law.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: Inst. 3,13 pr. — the Roman definition of obligation as a bond of law]**

The definition the entry paraphrases is Justinian's own: 'Obligatio est juris vinculum, quo necessitate adstringimur alicujus solvendae rei secundum nostrae civitatis jura' — an obligation is a legal bond by which we are compelled to perform something according to the laws of our state.

Why: The body gives the substance of the classical definition but names no source; the footnote supplies the verbatim primary text — the single most-cited sentence in the law of obligations — which is genuine illumination,...

**[Scripture] — Scripture**

**[Romans 13:8, KJV]**

Owe no man any thing, but to love one another: for he that loveth another hath fulfilled the law.

Why: The obligation defined as 'a bond of law, whereby one party becomes bound to another.' Romans 13:8 states the bound-ness itself: 'owe no man any thing' — the debt-bond discharged, love the remaining bond. Borderline-t...

## VINDEX.

Lat. In the civil law. A de- fender.

5e apparatus — Not carried into the 5th edition (1979).

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## VINDICARE.

Lat. In the civil law. To claim, or challenge; to demand one’s own; to assert a right in or to a thing; to assert or claim a property in a thing; to claim a thing as one’s own. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## VINDICATIO.

Lat. In. the civil law. The claiming a thing as one’s own ; the as- serting of a right or title in or to a thing.

5e apparatus — Not carried into the 5th edition (1979).

## VINDICATORY FARTS OF LAWS.

The sanction of the laws, whereby it is sig- nified what evil or penalty shall be incur- red by such as commit any public wrongs, and transgress or neglect their duty; 1 Steph. Comm. 37.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 6:23, KJV]**

For the wages of sin is death; but the gift of God is eternal life through Jesus Christ our Lord.

Why: The vindicatory part of laws = the sanction, 'what evil or penalty shall be incurred' by transgressors. Romans 6:23 states the ultimate sanction: 'the wages of sin is death' — the penalty incurred, in the vindicatory…

## VINDXCTA.

In Roman law. A rod or wand ; and, from the use of that instrument in their course, various legal acts came to be distinguished by the term ; e. g., one of the three ancient modes of manumission was by the vindicta; also the rod or wand inter- vened in the progress of the old action of vindicatio, whence the name of that action. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:2, KJV]**

If thou buy an Hebrew servant, six years he shall serve: and in the seventh he shall go out free for nothing.

Why: The vindicta was one of the three ancient modes of manumission — the freeing act. Exodus 21:2 is the Mosaic manumission law: in the seventh year 'he shall go out free' — liberation from servitude by law, the same free…

## VINDICTIVE DAMAGES.

See Dam- ages.

5e apparatus — Not carried into the 5th edition (1979).

## VINOUS LIQUORS.

This term includes all alcoholic beverages made from the Juice of the grape by the process of fermentation, and perhaps similar liquors made from ap- ples and from some species of berries ; but not pure alcohol nor distilled liquors nor malt liquors such as beer and ale. See

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Ad- ler v. State, 55 Ala. 23 ; ReyfClt v. State, 73 Miss. 415. 18 South. 925; Lemly v. State, 70 Miss. 241, 12 South. 22, 20 L. R. A. 045; Com. v. Reyburg, 122 Pa. 299, 10 Atl. 351, 2 L. R. A. 415; Feldman v. Morrison, 1 111. App. 462; Hinton v. State, 132 Ala. 29, 31 South. 503.

5e apparatus — Not carried into the 5th edition (1979).

## VIOL.

Fr. In French law. Rape. Bar- ring. Ob. St. 139.

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**[Scripture] — Scripture**

**[Deuteronomy 22:25, KJV]**

But if a man find a betrothed damsel in the field, and the man force her, and lie with her: then the man only that lay with her shall die:

Why: VIOL = rape, in French law. Deuteronomy 22:25 is the Mosaic rape-law: the man who forces the damsel — 'the man only that lay with her shall die' — the offense and its capital penalty stated as statute.

## VIOLATION.

Injury; Infringement; breach of right, duty, or law. Ravishment; seduction. The statute 25 Edw. III. St. 5, c. 2, enacts that any person who shall violate the king's companion shall be guilty of high treason.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 John 3:4, KJV]**

Whosoever committeth sin transgresseth also the law: for sin is the transgression of the law.

Why: VIOLATION = breach of right, duty, or law. 1 John 3:4 defines it in the same form: 'sin is the transgression of the law' — violation as the crossing of law.

## VIOLATION OF SAFE CONDUCTS.

An offense against the laws of nations. 4 Steph. Comm. 217.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Kings 6:22-23, KJV]**

And he answered, Thou shalt not smite them; wouldest thou smite those whom thou hast taken captive with thy sword and with thy bow? set bread and water before them, that they may eat and drink, and go to their master. And he prepared great provision for them: and when they had eaten and drunk, he sent them away, and they went to their master.

Why: An offense against the law of nations — the breach of pledged safety. Elisha's dealing with the blinded Syrian raiders is the scriptural instance of safe conduct honoured: fed, and 'sent them away' to their master unh…

## VIOLENCE.

The term “violence” to synonymous with “physical force,” and the two are used interchangeably, in relation to assaults, by elementary writers on criminal law. State v. Wells, 31 Conn. 212.

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**[Scripture] — Scripture**

**[Genesis 6:11, KJV]**

The earth also was corrupt before God, and the earth was filled with violence.

Why: VIOLENCE = physical force, in criminal law. Genesis 6:11 names violence as the corruption that fills the earth — the wrong the criminal law answers. VIOLENT and VIOLENTLY left bare (one per family).

## VIOLENT.

Characterized or caused by violence; severe; assailing the person (and

metaphorically, the mind) with a great de- gree of force.

—Violent death. Death caused by violent external means, as distinguished from, natural death, caused by disease or the wasting of the vital forces.— Violent presumption. In the law of evidence. Proof of a fact by the proof of circumstances which necessarily attend it.

3 Bl. Comm. 371. Violent presumption is many times equal to full proof. Id. See Davis v. Curry. 2 Bibb (Ky.) 239; Shealy v. Edwards, 75 Ala. 419.— Violent profits. Mesne profits in Scotland. “They are so called because due on the tenant's forcible or unwarrantable de- taining the possession after he ought to have removed.” Ersk. Inst. 2, 6, 54 ; Bell.

Violent* prseaumptio aliquando est plena probatio. Co. LItt. 66. Violent pre- sumption is sometimes full proof.

5e apparatus — Carried into the 5th edition (1979).

## VIOLENTLY.

By the use of force ; forci- bly; with violence. The term to used in in- dictments for certain offenses. State Vt Blake, 39 Me. 324 ; State v. Williams, 32 La. Ann. 337, 30 Am. Rep. 272; Craig v. State, 157 Ind. 574, 62 N. E. 5.

Viperlna eat eapositlo qnse corrodit viscera textus. 11 Coke, 34. It is a poison- ous exposition which destroys the vitals of the text.

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## VIR.

Lat. A man, especially as mark- ing the sex. In the Latin phrases and max- ims of the old English law, this word gen- erally means “husband,” the expression vir et uxor corresponding to the law French baron et feme.

Vir et uxor censentur in lege una per- sona. Jenk. Cent. 27. Husband and wife are considered one person in law.

Vir et uxor sunt quasi union persona, quia caro et sanguis nuns; res licet sit propria uxoris, vir tamen ejus custos, cum sit caput mulieris. Co. Lift. 112. Man and wife are, as it were, one person, because only one flesh and blood; although the property may be the wife’s, the husband is keeper of it, since he is the head of the wife.

Vir ■»<»♦»«« Deo non implicetur seeu- laribus negotiis. Co. LItt. 70. ’ A man

fighting for God must not be involved in sec- ular business.

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**[Scripture] — Scripture**

**[Matthew 19:5-6, KJV]**

And said, For this cause shall a man leave father and mother, and shall cleave to his wife: and they twain shall be one flesh? Wherefore they are no more twain, but one flesh. What therefore God hath joined together, let not man put asunder.

Why: The entry's maxim: 'vir et uxor censentur in lege una persona' — husband and wife are one person in law. Christ states the root: 'they twain shall be one flesh... they are no more twain, but one flesh' — the legal uni...

## VIRES.

Lat. (The plural of “vis.") Pow- ers; forces; capabilities; natural powers; powers granted or limited. See Ultra Vibes.

Vires aoquirit eundo. It gains strength by continuance. Mann v. Mann’s Ex’rs, 1 Johns. Ch. (N. Y.) 231, 237.

5e apparatus — Not carried into the 5th edition (1979).

## VIRGA.

In old English law. A rod or staff ; a rod or ensign of office. Cowell.

VTRGA TERRA, (qr VIRGATA TER- RA.) In old English law. A yard-land; a measure of land of variable quantity, con- taining In some places twenty, In others twenty-four, In others thirty, and In others forty,. acres. Cowell; Co. Utt. 5a.

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**[Scripture] — Scripture**

**[Numbers 17:8, KJV]**

And it came to pass, that on the morrow Moses went into the tabernacle of witness; and, behold, the rod of Aaron for the house of Levi was budded, and brought forth buds, and bloomed blossoms, and yielded almonds.

Why: VIRGA = a rod or ensign of office. Aaron's rod, budding among the tribal rods, is the rod as the token of the chosen office — the ensign authenticating authority. Borderline: the entry is old English law, the verse th...

## VIRGATA REGIA.

In old English law. The verge; the bounds of the king’s house- hold, within which the court of the steward had jurisdiction. Crabb, Eng. Law, 185.

5e apparatus — Not carried into the 5th edition (1979).

## V IRGATE.

A yard-land.

5e apparatus — Not carried into the 5th edition (1979).

## VIRGE, TEN ART BY.

A species of copyholder, who holds by the virge or rod.

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## V IK GO INTACTA.

Lat. A pure virgin.

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5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[Isaiah 7:14, KJV]**

Therefore the Lord himself shall give you a sign; Behold, a virgin shall conceive, and bear a son, and shall call his name Immanuel.

Why: 'A pure virgin.' Isaiah 7:14 is the virgin's own verse: 'behold, a virgin shall conceive' — the pure virgin of prophecy, the same term the entry defines.

## VXREDARXO EUGENDO.

A writ for choice of a verderer in the forest. ' Reg. Orlg. 177.

V1KII.IA. The privy members of a man, to cut off which was felony by the common law, though the party consented to It Bract

I. 3, 144; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## VIRTUE.

The phrase “by virtue” dif- fers in meaning from “under color.” For instance, the proper fees are received by vir- tue of the office; extortion Is under color of the office. Any rightful act In office is by virtue of the office. A wrongful act In office may be nnder color of the office. Phil. Law, 380.

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## V1KTUTK CUJXTS.

Lat By virtue whereof. This was the clause in a pleading justifying an entry upon land, by which the party alleged that It was in virtue of an order from one entitled that he entered. Wharton.

force used to thrust out another. Force used between two contending claimants of possession, the one endeavoring to thrust out the other. Galvin.— VI* flumlnU. In the civil law. The force of a river; the force exerted by a stream or current ; water-power.— VI* im- press*. The original act of force out of which an injury arises, as distinguished from “vis proximo, the proximate force, or immediate cause of the injury. 2 Greenl. Et. g 224— Vis inermls. In old English law. Unarmed force ; the opposite of “vi» armata." Bract fol. 162.— Vis injnriosa. In old English law. Wrongful force; otherwise called "illicita" (unlawful.) Bract, fol. 162.— Vis inqnletativm. In the civil law. Disquieting force. Calvin. Bracton defines it to be where one does not per- mit another to use his possession quietly ana in peace. Bract, fol. 162.— Vis Uw. In old English law. Lay force: an armed force used to hold possession of a church. Reg. Orig. 59, 60. — Vis lieit*. In old English law. Lawful force. Bract, fol. 162.— Vis major. A greater or superior force ; an irresistible force. This term is much used in the law of bailments to denote the interposition of violence or coercion proceeding from human agency, (wherein it dif- fers from the “act of God,”) but of such a character and strength as to be beyond the powers of resistance or control of those against whom it is directed ; for example, the attack of the public enemy or a band of pirates. See The George Shiras, 61

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Fed. 300, 9 C. C. A. 511 : Brousseau v. The Hudson, 11 La. Ann. 428; Nugent v. Smith, 1 C. P. Div. 437. Ir the civil law, this term ift sometimes used as svitouymous with “vie divina," or the act of God. Calvin. -Vi* pertnbativa. In old English law. Force used between parties contending for a

gDssession.— Vis proxima. Immediate force.

ee Via Impbessa — Vis simplex. In old English law. Simple or mere force. Distin- guished by Bracton from "vis armata,’’ and also from "vis expulsive .” Bract, fol. 162.

Vis legibus est inlmica. 3 Inst. 176. Violence Is inimical to the laws.

5e apparatus — Not carried into the 5th edition (1979).

## VISA.

An official Indorsement upon a document, passport, commercial book, etc., to certify that It has been examined and found correct or In due form.

5e apparatus — Not carried into the 5th edition (1979).

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**[Hip-hop] — Hip-hop**

**[M.I.A., 'Paper Planes', 2007]**

'If you catch me at the border I got visas in my name' — the visa as the official indorsement examined at the border, carried in the lyric exactly as the legal term functions: a document certified in due form, presented to cross.

Why: Genuine link: the legal term VISA is an official indorsement upon a passport certifying it examined and in due form; the lyric is literally about presenting visas at a border crossing. Verbatim-certain (third verse of...

## VZRTUTB OFFICII.

Lat. By virtue of bis office. By the authority vested In him as the incumbent of the particular office.

5e apparatus — Not carried into the 5th edition (1979).

## VIS.

Lat. Any kind of force, violence, or disturbance relating to a man’s person or his property.

—Vis ablativa. In the civil law. Ablative force; force which ia exerted in taking away a thing from another. Calvin.— Vis armata. In the civil and old English law. Armed force ; force exerted by means of arms or weapons. — Vis clandestine. In old English law. Clandes- tine force; such as is used by night. Bract, fol. 162.— Vis compulsive. In the civil and old English law. Compulsive force ; that which is exerted to compel another to do an act against bis will ; force exerted by menaces or terror.— Vis divina. In the civil law. Divine or superhuman force ; the act of God.— Vis et metns. In Scotch law. Force and fear. Bell. —Vis expulsive. In old English law. Ex- pulsive force; force used to expel another, or put him out of hia possession. Bracton con- trasts it with "vis simplex .” and divides it into expulsive force with arms, and expulsive force without arm* Bract, fol. 162.— Via extur- ■atlva. In the civil law. Exturbative force;

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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## VISCOUNT.

A decree of English nobil- ity, next below that of earl.

An old title of the sheriff.

VXS£. An indorsement made on a pass- port by the proper authorities, denoting that It has been examined, and that the person who bears it Is permitted to proceed on his Journey. Webster.

5e apparatus — Not carried into the 5th edition (1979).

## VISIT.

In international law. The right of visit or visitation is the right of a cruiser or war-ship to stop a vessel sailing under another flag on the high seas, and send an officer to such vessel to ascertain whether her nationality is what It purports to be. It is exercisable only when suspicious circum- stances attend the vessel to be visited; as when she Is suspected of a piratical char- acter.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UNCLOS art. 110 — right of visit]**

The belligerent/peacetime right of visit the entry describes was codified in the modern law of the sea: a warship may board a foreign vessel on the high seas on reasonable ground for suspecting piracy, the slave trade, or statelessness, among other listed grounds.

Why: The body states only the doctrine in general terms with no treaty or codified authority; the footnote supplies the controlling modern codification — the provision under which the right actually operates today. Same 'm...

## VISITATION.

Inspection ; superintend- ence; direction; regulation. A power giv- en by law to the founders of all eleemoaynary corporations. 2 Kent, Comm. 300-303;

1 Bl. Comm. 480, 481. In England, the vis- itation of ecclesiastical corporations belongs to the ordinary. Id. See Trustees of Union Baptist Ass’n v. Hunn, 7 Tex. Civ. App. 249, 26 S. W. 755; Allen v. McKean, 1 Fed. Cas. 498.

5e apparatus — Carried into the 5th edition (1979).

## VISITATION BOOKS.

In English law. Books compiled by the heralds, when prog- resses were solemnly and regularly made Into every part of the kingdom, to Inquire into the state of families, and to register such marriages and descents as were verified to them upon oath; they were allowed to he good evidence of pedigree. 3 Bl. Comm. 105; 8 Steph. Comm. 724.

5e apparatus — Carried into the 5th edition (1979).

## VISITOR.

An inspector of the govern- ment of corporations, or bodies politic. 1 Bl. Comm. 482.

Visitor is an inspector of the government of a corporation, etc. The ordinary is visitor of spir- itual corporations. But corporations instituted for private charity, if they are lay, are

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visitable by the founder, or whom he shall appoint ; and from the sentence of such visitor there lies no appeal. By implication of law, the founder and his heirs are visitors of lay foundations, if no particular person is appointed by him to see that the charity is not perverted. Jacob.

The term “visitor” is also applied to an offi- cial appointed to see and report upon persons found lunatics by inquisition, .and to a person appointed by a school board to visit houses and see that parents are complying with the provisions in reference to the education of their children. Mozley A Whitley.

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## VISITOR OF MANNERS.

The regard- er's office in the forest. Manw. 1. 195.

5e apparatus — Carried into the 5th edition (1979).

## VISNE.

L. Fr. The neighborhood: vic- inage; venue. Ex parte McNeeley, 36 W. Va. 84, 14 S. E. 436, 15 I,. It. A. 226, 32 Am. St Hep. 831; State v. Kemp, 34 Minn. 61, 24 N. W. 349.

5e apparatus — Not carried into the 5th edition (1979).

## VISU8.

Lat. In old English practice. View; inspection, either of a place or per- son.

5e apparatus — Not carried into the 5th edition (1979).

## VITIATE.

To impair; to make void or voidable; to cause to fail of force or effect; to destroy or annul, either entirely or In imrt, the legal efficacy and binding force of an act or instrument ; as when it is said that fraud vitiates a contract.

5e apparatus — Carried into the 5th edition (1979).

## VITILIGATE.

To litigate cavilously, vexatlouBly, or from merely quarrelsome mo- tives.

5e apparatus — Not carried into the 5th edition (1979).

## VITI017S INTROMISSION.

In Scotch law. An unwarrantable Intermeddling with the movable estate of a person deceased, without the order of law. Ersk. Prln. b. 3, tit 9, | 25. The Irregular intermeddling with the effects of a deceased person, which

subjects the party to the whole debts of the deceased. 2 Karnes, Eq. 327.

5e apparatus — Not carried into the 5th edition (1979).

## VITIUM CLERICI.

In old English law. The mistake of a clerk ; a clerical error.

Vltitun cleric! nocere non. debet. Jenk. Cent 23. A clerical error ought not to hurt

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Vititim est quod fngi debet, nisi, ra- tionem non invent aa, max legem sine ratione esse elmmes. Ellesm. Post. N. 86. It Is a fault which ought to be avoided, that If you cannot discover the reason you should presently exclaim that the law is without rea- son.

5e apparatus — Not carried into the 5th edition (1979).

## VITIUM SCRIPTORIS.

In old English law. The fault or mistake of a writer or copyist ; a clerical error. Gilb. Forum Horn. 185.

5e apparatus — Not carried into the 5th edition (1979).

## VITRICUS.

Lat In the civil law. A step-father ; a mother’s second husband. Cal- vin.

5e apparatus — Not carried into the 5th edition (1979).

## VIVA AQUA.

Lat. In the civil law. Living water ; running water ; that which is- sues from a spring or fountain. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 4:10, KJV]**

Jesus answered and said unto her, If thou knewest the gift of God, and who it is that saith to thee, Give me to drink; thou wouldest have asked of him, and he would have given thee living water.

Why: VIVA AQUA = living water; running water. Christ uses the very phrase: 'he would have given thee living water' — the entry's term in His own mouth.

## VIVA PEC UNI A.

Lat Cattle, which obtained this name from being received dur- ing the Saxon period as money upon most oc- casions, at certain regulated prices. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 47:16-17, KJV]**

And Joseph said, Give your cattle; and I will give you for your cattle, if money fail. And they brought their cattle unto Joseph: and Joseph gave them bread in exchange for horses, and for the flocks, and for the cattle of the herds, and for the asses: and he fed them with bread for all their cattle for that year.

Why: Cattle 'received during the Saxon period as money upon most occasions.' Genesis 47:16-17 shows cattle serving as money in the famine: 'give your cattle... if money fail' — bread given 'in exchange' for the herds. Bord...

## VIVA VOCE.

Lat With the living voice ; by word of mouth. As applied to the examination of witnesses, this phrase is equivalent to "orally.” It is used in contra- distinction to evidence on affidavits or depo- sitions. As descriptive of a species of voting, it signifies voting by speech or outcry, as dis- tinguished from voting by a written or print- ed ballot.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) Atticus Finch's cross-examination of Mayella and Bob Ewell at Tom Robinson's trial — witnesses examined viva voce, by the living voice, their testimony tested orally before the jury rather than taken on affidavit. (paraphrase)

Why: Distinct from VERDICT (the jury's decision) and ZEALOUS WITNESS (partiality): this targets the entry's concept — oral examination of witnesses as opposed to evidence on affidavits or depositions.

## VIVARIUM.

Iat In the civil law. An inclosed place, where live wild animals are kept Calvin ; Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## VIVARY.

In English law. A place for keeping wild animals alive. Including fishes; a fish pond, park, or warren.

5e apparatus — Not carried into the 5th edition (1979).

## VTVUM VADIUM.

See Vadium.

Vix nil* lex fieri potest qu omnibus commode sit, sed si major! parti prospi- eiat, n tills est. Scarcely any law can be made which Is adapted to all, but, if it pro- vide for the greater part, It Is useful. Plowd. 369.

5e apparatus — Not carried into the 5th edition (1979).

## VIZ.

A contraction for videlicet, to-wit, namely, that is to say.

5e apparatus — Not carried into the 5th edition (1979).

## VOCABULA ARTIS.

Lat Words of art; technical terms.

Vooabula artium explicandm suit se- onsdom deflnitiones pradestnn. Terms of arts are to be explained according to the definitions of the learned or skilled Lin such arts.) Bl. Law Tracts, 6.

5e apparatus — Not carried into the 5th edition (1979).

## VOCABE AD CURIAM.

In feudal law. To summon to court Feud. Lib. 2, tit 22.

YOCATIO Uf XUS. Lat. A summoning to court. In the earlier practice of the Roman law, (under the leg is aetiones,) the creditor orally called upon his debtor to go with him before the pnetor for the purpose of determining their controversy, saying, “In jus cum us; in jus te voco." This was called “vocatio in jus."

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## VOCIFERATIO.

Lat In old English law. Outcry; hue and cry. Cowell.

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## VOCO.

Lat In the civil and old Eng- lish law. I call ; I summon ; I vouch. In jus voco te, I summon you to court; I sum- mon you before the pnetor. The formula by which a Roman action was anciently com- menced. Adams, Rom. Ant. 242.

5e apparatus — Not carried into the 5th edition (1979).

## VOID.

Null; ineffectual; nugatory; har- ing no legal force or binding effect; unable, in law, to support the purpose for which it was intended.

"Void” does not always imply entire nullity; but it is, in a legal sense, subject to large quali- fications in view of all the circumstances calling for its application, and the rights and interests to be affected in a given case. Brown v. Brown, 50 N. H. 538, 552.

“Void,” as used in statutes and by the courts, does not usually mean that the ict or proceeding is an absolute nullity. Kearney v. Vaughan, 50 Mo. 284.

There is this difference between the two words "void” and "voidable:” void means that an instrument or transaction is so nuga- tory and ineffectual that nothing can cure it; voidable, when an imperfection or defect can be cured by the act or confirmation of him who could take advantage of it Thus, while acceptance of rent will make good a voidable lease, it will not affirm a void lease. Wharton.

The true distinction between void and voidable acts, orders, and judgments is that the former can always be assailed in any proceeding, and the latter only in a direct proceeding. Alex- ander v. Nelson. 42 Ala. 4f>2.

The term "void.” as applicable to conveyances or other agreements, has not at all times been used with technical precision, nor restricted to its peculiar and limiter! sense, as contradistin- guished from “voidable it being frequently introduced, even by legal writers and jurists, when the purpose is nothing further than to indicate that a contract was invalid, and not binding in law. But the distinction between the terms "void” and "voidable,” in their ap- plication to contracts, is often one of great prac- tical importance; and, whenever entire tech- nical accuracy is required, the term “void" can only be properly applied to those contracts that are of no effect whatsoever, such as are a mere nullity, and incapable of confirmation or ratification. Allis v. Billings, 6 Mete. (Mass.) 415, 39 Am. Dec. 744.

Void la part, wold la to to. Curtis ▼.

Leavitt, 15 N. Y. 9, 9tS.

Void tUagi are as no things. People

v. Shall, 9 Cow. (N. Y.) 778, 784.

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## VOIDABLE.

That may be avoided, or declared void ; not absolutely void, or void In itself. Most of the acts of infants are voida- ble only, and not absolutely void. 2 Kent, Comm. 234. See Void.

5e apparatus — Carried into the 5th edition (1979).

## VOIDANCE.

The act of emptying ; ejec- tion from a benefice.

vont DIRE. L. Fr. To speak the truth. This phrase denotes the preliminary examination which the court may make of one presented as a witness or Juror, where his competency, Interest, etc., is objected to.

5e apparatus — Not carried into the 5th edition (1979).

## VOITURE.

Fr. Carriage; transporta- tion by carriage.

5e apparatus — Not carried into the 5th edition (1979).

## VOLENS.

Lat Willing. He is said to be willing who either expressly consents or tacitly makes no opposition. Calvin.

Volenti bob fit Injuria. He who con- sents cannot receive an injury. Broom, Max. 208, 209, 271, 395; Shelf. Mar. & Div. 449; Wing. Max. 482 ; 4 Term R. 057.

Volnit, sod non dixit. He willed, but be did not say. He may have intended so, but he did not say so. A maxim frequently used in the construction of wills, in answer to arguments based upon the supposed intention of a testator. 2 Pow. Dev. 025 ; 4 Kent, Comm. 538.

VOLUME*. Lat In the civil law. A volume ; so called from its form, being rolled up.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Philemon 1:14, KJV]**

But without thy mind would I do nothing; that thy benefit should not be as it were of necessity, but willingly.

Why: VOLENS = willing; he is willing who expressly consents. The entry's maxim is 'volenti non fit injuria' — consent negates injury. Philemon 1:14 guards the same line: the benefit must be 'willingly,' not 'of necessity'...

## VOLUMUS.

Lat We will; It is our will. The first word of a clause in the royal writs of protection and letters patent Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## VOLUNTARIUS DAEMON.

A voluntary madman. A term applied by Lord Coke to a drunkard, who has voluntarily contracted madness by intoxication. Co. Litt 247; 4 Bl. Comm. 25.

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**[Scripture] — Scripture**

**[Ephesians 5:18, KJV]**

And be not drunk with wine, wherein is excess; but be filled with the Spirit;

Why: The 'voluntary madman' — the drunkard who voluntarily contracted madness by intoxication. Ephesians 5:18 addresses the voluntary act itself: 'be not drunk with wine, wherein is excess' — the chosen intoxication the en...

## VOLUNTARY.

Free; without compul- sion or solicitation.

Without consideration; without valuable consideration ; gratuitous.

— Voluntary courtesy. A voluntary act of kindness ; an act of kindness performed by one man towards another, of the free will and in- clination of the doer, without any previous re- quest or promise of reward made by him who is the object of the courtesy ; from which the law will not imply a promise of remuneration. Holthouse.— ' voluntary ignorance. This ex- ists where a party might, oy taking reasonable ains. have acquired the necessary knowledge, ut has neglected to do so.

As to voluntary “Answer,” “Assignment,” “Bankruptcy," “Confession,” “Conveyance,” “Deposit,” “Escape,” “Jurisdiction,” “Man- slaughter,” “Nonsuit,” “Oath,” “Payment,” “Redemption,” “Sale,” “Settlement,” “Trust,” and “Waste,” see those titles.

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**[Scripture] — Scripture**

**[2 Corinthians 9:7, KJV]**

Every man according as he purposeth in his heart, so let him give; not grudgingly, or of necessity: for God loveth a cheerful giver.

Why: VOLUNTARY = free; without compulsion. 2 Corinthians 9:7 defines the voluntary act: purposed in the heart, 'not grudgingly, or of necessity' — freedom from compulsion as the mark of the voluntary.

## VOLUNTAS.

Lat. Properly, volition, purpose, or Intention, or a design or the feel- ing or impulse which prompts the commis- sion of an act; but In old English law the term was often used to denote a will, that is, the last will and testament of a decedent, more properly called testamentum.

Voluntas dona torts In chsrts deni snl manifests express* observetur. Co. Litt.

2L The will of the donor manifestly ex- pressed in his deed of gift is to be observed.

Voluntas est junta sententla de eo quod quia poet mortem suam fieri veltt. A

will is an exact opinion or determination concerning that which each one wishes to be done after his death.

Voluntas et proposttua dlstinguunt maleficia. The will and the proposed end distinguish crimes. Bract, fols. 26, 1366.

Voluntas faclt quod in testamento scriptum valent. Dig. 30, 1, 12, 3. It is intention which gives effect to the wording of a will.

Voluntas In delictis, non exltus spec- tator. 2 Inst 57. In crimes, the will, and not the

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consequence, is looked to.

Voluntas reputatur pro facto. The In- tention is to be taken for the deed. 3 Inst 60; Broom, Max. 311.

Voluntas testatoris cst ambulator!* usque ad extremum vitae exitum. 4 Coke, 61. The will of a testator Is ambulatory until the latest moment of life.

Voluntas testatoris habet interpreta- tionem latum et benignant. Jenk. Cent. 260. The intention of a testator has a broad and benignant Interpretation.

Voluntas ultima testatoris est perim- plenda secundum veram intentionem

suam. Co. Litt. 322. The last will of the testator is to be fulfilled according to his true intention.

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**[Scripture] — Scripture**

**[Hebrews 9:16-17, KJV]**

For where a testament is, there must also of necessity be the death of the testator. For a testament is of force after men are dead: otherwise it is of no strength at all while the testator liveth.

Why: VOLUNTAS in old English law = the last will and testament. Hebrews 9:16-17 states the testament's legal nature: it is 'of force after men are dead' — the will taking effect at death, exactly the entry's sense.

## VOLUNTEER.

In conveyancing, one

who holds a title under a voluntary convey- ance, i. e., one made without consideration, good or valuable, to support It

A person who gives his services without any express or implied promise of remunera- tion in return Is called a “volunteer,” and is entitled to no remuneration for his services.

nor to any compensation for injuries sus- tained by him in performing what he has un- dertaken Sweet. Also one who officiously payB the debt of another. See Irvine v. An- gus. 93 Fed. 633, 35 C. C. A. 501 ; Arnold v. Green, 116 N. Y. 566, 23 N. E. 1 ; Bennett v. Chandler, 199 111. 97, 64 N. E. 1052; Welch v. Maine Cent. R. Co., 86 Me. 552, 30 Atl. 116, 25 L. R. A. 658.

Ia military law, the term designates one who freely and voluntarily offers himself for service In the array or navy ; as distinguished from one who Is compelled to serve by draft or conscription, and also from one entered by enlistment In the standing army.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 10:8, KJV]**

Heal the sick, cleanse the lepers, raise the dead, cast out devils: freely ye have received, freely give.

Why: VOLUNTEER = one who gives his services without promise of remuneration. Christ's charge is the volunteer rule: 'freely ye have received, freely give' — service rendered without charge.

## VOTE.

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Suffrage; the expression of his will, preference, or choice, formally manir fested by a member of a legislative or delib- erative body, or of a constituency or a .body of qualified electors, In regard to the deci- sion to be made by the body as a whole upon any proposed measure or proceeding, or the selection of an officer or representative. And the aggregate of the expressions of will or choice, thus manifested by individuals, Is called the “vote of the body.” See Maynard v. Board of Canvassers, 84 Mich. 228, 47 N.

W. 756, 11 L. R. A. 332; Gillespie v. Palmer, 20 Wis. 546; Davis v. Brown, 46 W. Va. 716, 34 S. E. 839.

—Casting vote. See that title.— Cumulative voting. See Cumulative.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Sarah Gavron, Suffragette, 2015]**

(paraphrase) Suffragette dramatizes the fight to become qualified electors — the women's suffrage struggle for the very "voice or suffrage" this entry defines. (paraphrase)

Why: The entry defines the vote as the formally manifested expression of will by qualified electors; the film dramatizes the historical fight to attain that qualification. Year confident.

## VOTER.

One who has the right of giv- ing his voice or suffrage.

5e apparatus — Carried into the 5th edition (1979).

## VOTES AND PROCEEDINGS.

In the

houses of parliament the clerks at the tables make brief entries of all that is actually done; and these minutes, which are printed from day to day for the use of members, are called the “votes and proceedings of parlia- ment.” From these votes and proceedings the journals of the house are subsequently pre- pared, by making the entries at greater length. Brown.

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## VOTUM.

Lat. A vow or promise. Dies votorum, the wedding day. Fleta 1. 1, c. 4.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 5:4-5, KJV]**

When thou vowest a vow unto God, defer not to pay it; for he hath no pleasure in fools: pay that which thou hast vowed. Better is it that thou shouldest not vow, than that thou shouldest vow and not pay.

Why: VOTUM = a vow or promise. Ecclesiastes 5:4-5 is the law of the vow: 'defer not to pay it... pay that which thou hast vowed' — the vow's binding force stated as doctrine. Companion to UTRUMQUE NOSTRUM (Num 30:2), disti...

## VOUCH.

To call upon; to call in to war- ranty ; to call upon the grantor or warrantor to defend the

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title to au estate.

To vouch is to call upon, rely on, or quote as an authority. Thus, in the old writers, to vouch a case or rei»rt is to quote it as an authority. Co.fLitt. 70 a.

5e apparatus — Not carried into the 5th edition (1979).

## VOUCHEE.

In common recoveries, the person who is called to warrant or defend the title is called the “vouchee.” 2 Bouv. Inst, no. 2093.

—Common vouchee. In common recoveries, the person who is vouched to warranty. In this fictitious proceeding the crier of the court usual- ly performs the office of a common vouchee. 2 Bl. Comm. 358 ; 2 Bouv. Inst. n. 2093.

VULQO QUiESITl

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## VOUCHER.

A receipt, acquittance, or release, which may serve as evidence of pay- ment or discharge of a debt, or to certify the correctness of accounts. An account-book con- taining the acquittances or receipts showing the accountant's discharge of his obligations. Whitwell v. Willard, 1 Mete. (Mass.) 218.

The term “voucher,” when used In connection with the disbursements of moneys, implies some written or printed instrument in the nature of a receipt, note, account, bill of particulars, or something of that character which shows on what account or by what authority a particular payment has been made, and which may be kept or filed away by the party receiving it, for his own convenience or protection, or that of the public. People v. Swigert, 107 111. 504.

In old conveyancing. The person on whom the tenant calls to defend the title to the land, because he warranted the title to him at the time of the 'Original purchase.

5e apparatus — Not carried into the 5th edition (1979).

## VOUCHER TO WARRANTY.

The call- ing one who has warranted lands, by the par- ty warranted, to come and defend the suit for him. Co. Ldtfc 1016.

Vos si»ina volat; litem script* mi- net. The spoken word flies ; the written let- ter remains. Broom, Max. 666.

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## VOX SIONATA.

In Scotch practice. An emphatic or essential word. 2 Alts. Crim. Pr. 280.

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## VOYAGE.

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In maritime law. The pass- ing of a vessel by sea from one place, port, or country to another. The term is held to include the enterprise entered upon, and not merely the route. Friend v. Insurance Co., 113 Mass. 326.

— Foreign voyage. A voyage to some port or place within the territory of a foreign nation. The terminus of a voyage determines its char- acter. If it be within the. limits of a foreign jurisdiction, it is a foreign voyage, and not otherwise. Taber v. United States, 1 Story, 1,

Fed. Cas. No. 13,722; The Three Brothers, 23 Fed. Cas. 1,162.— Voyage insured. In insur- ance law. A- transit at sea from the terminus a quo to the terminus ad quern, in a prescribed course of navigation, which is never set out in any policy, but virtually forms parts of all policies, and is as binding on the parties there- to as though it were minutely detailed. 1 Arm Ins. 333.— Voyage policy. See Policy or Imsubancx.

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## VRAIC.

Seaweed. It is used in great quantities by the inhabitants of Jersey and Guernsey for manure, and also for fuel by the poorer classes.

5e apparatus — Not carried into the 5th edition (1979).

## VS.

An abbreviation for versus, (against.) constantly used in legal proceedings, and es- pecially in entitling cases.

V ulgaris opinio est duplex, sis., orta inter graves et discretos, qnss mnltnns veritatis habet, et opinio orta inter love* et vnlgares homines absque specie veri- tatis. 4 Coke, 107. Common opinion is of two kinds, vis., that which arises among grave and discreet men, which has much truth In it, and that which arises among light and common men, without any appearance of truth.

VC[X,GARI8 PURGATIO. Let In old English law. Common purgation; a name given to the trial by ordeal, to distinguish It from the canonical purgation, which was by the oatb of the party. 4 Bl. Comm. 342.

VULGO CONCEPT!. Let In the civil law. Spurious Children; bastards.

VTJXGO QUiESITI. Let. In the civil law. Spurions children; literally, gotten from the people; the offspring .of promiscuous cohabitation, wbo are considered as having no father. Inst. 3, 4, 3; Id. 3, 5, 4.

w.

w

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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# W

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## W.

As an abbreviation, this letter fre- quently stands for “William,” (king of Eng- land,) “Westminster,” “west,” or “western."

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## W. D.

An abbreviation for "Western Dis- trict”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WACREOTIR.

L. Fr. A vagabond, or vagrant Britt, c. 29.

5e apparatus — Not carried into the 5th edition (1979).

## WADSET.

In Scotch law. The old term for a mortgage. A right by wbicb lands or other heritable subjects are lmplgnorated by the proprietor to his creditor in security of his debt. Wadsets are usually drawn. In the form of mutual contracts. In which one par- ty sells the land, and the other grants the right of reversion. Ersk. Inst 2, 8, 3.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 24:10-11, KJV]**

When thou dost lend thy brother any thing, thou shalt not go into his house to fetch his pledge. Thou shalt stand abroad, and the man to whom thou dost lend shall bring out the pledge abroad unto thee.

Why: WADSET = the Scotch mortgage — lands impignorated in security of debt. Deuteronomy 24:10-11 is the Mosaic law of the pledge's taking: the creditor's restraint, the debtor's delivery — the pledge-security's own procedu...

## WADSETTER.

In Scotch law. A cred- itor to whom a wadset Is made, corresponding to a mortgagee.

5e apparatus — Not carried into the 5th edition (1979).

## WAFTORS.

Conductors of vessels at sea. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WAGA.

In old English law. A weigh; a measure of cheese, salt, wool, etc., contain- ing two hundred and fifty-six pounds avoir- dupois. Cowell ; Spelman.

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**[Scripture] — Scripture**

**[Proverbs 11:1, KJV]**

A false balance is abomination to the LORD: but a just weight is his delight.

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Why: WAGA = a weigh; a measure of 256 pounds. Proverbs 11:1 is the scriptural law of weight: 'a just weight is his delight' — the lawful measure the entry's weigh belongs to. Companion to VARA (Lev 19:35).

## WAGE.

In old English practice. To give security for the • performance of a thing. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WAGER.

A wager Is a contract by which two or more parties agree that a certain sum of money or other thing shall be paid or de- livered to one of them on the happening of an uncertain event or upon the ascertain- ment of a fact which Is in dispute between them. Trust Co. v. Goodrich, 75 111. 560; Jordan v. Kent, 44 How. Prac. (N. Y.) 207; Winward v. Lincoln, 23 R. I. 476, 51 Atl. 106, 64 L. R. A. 160; Edson v. Pawlet, 22 Vt 293; Woodcock v. McQueen, 11 Ind. 15.

A contract In which the parties stipulate that they shall gain or lose upon the happen- ing of an uncertain event In which they have no Interest, except that arising from the pos- sibility of such gain or loss. Farelra v. Gab- ell, 89 Pa. 90; Kitchen v. Loudenback, 48 Ohio 8t 177, 26 N. E. 979, 29 Am. St. Rep. 540. See, also, Bet.

—Wager of battel. The trial by wager of battel was a species of trial introduced into England, among other Norman customs, by William the Conqueror, in which the person accused fought with his accuser, under the ap- prehension that Heaven would give the victory to him who was in the right. 3 Bl. Comm. 337. It was abolished by St. 59 Geo. III. c. 46.— Wager of law. In old practice. The giving of gape or sureties by a defendant in an action of debt that af a certain day assigned he would make hi* law; that is. would take an oath in open court that he did not owe the debt, and at

the same time bring with him eleven neighbors, (called “compurgators,”) who should avow upon their oaths that they believed in their con- sciences that he said the truth. Glanv. lib. 1, c. 9, 12; Bract, fol. 1566 .’ Britt c. 27 ; 2 Bl. Comm. 348 ; Cro. Elis. 818.— Wager policy. See Policy or Insurance. — Wagering con- tract. One in which the parties stipulate that they shall gain or lose, upon the happening of an uncertain' event, in which they have no in- terest except that arising from the possibility of such gain or loss. Fareira v. Gabell, 89 Pa. 89.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 16:33, KJV]**

The lot is cast into the lap; but the whole disposing thereof is of the LORD.

Why: A wager is a contract turning on an uncertain event. Proverbs 16:33 names the uncertain event's disposal: 'the lot is cast into the lap; but the whole disposing thereof is of the LORD.' Borderline: the verse governs l...

## WAGES.

The compensation agreed upon by a master to be paid to a servant, or any other person hired to do work or business for him.

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In maritime law. The compensation al- lowed to seamen for their services on board a vessel during a voyage.

In political economy. The reward paid, whether In money or goods, to human exer- tion, considered as a factor In the production of wealth, for Its co-operation In the process.

“Three factors contribute to the production of commodities, — nature, labor, and capital. Each must have a share of the product as its reward, and this share, if it is just, must be proportion- ate to the several contributions. The share of the natural agents is rent; the share of labor, i cage*; the share of capital, interest. The clerk receives a salary ; the lawyer and doctor, fees ; the manufacturer, profits. Salary, fees, and profits are so many forms of wages for services rendered.” De Laveleye, Pol. Econ.

—Wage earner. One who earns his living by labor of a menial or mechanical kind or per- formed in a subordinate capacity, such as do- mestic servants, mechanics, farm hands, clerks, porters, and messengers. In the United States bankruptcy act of 1898, an individual who works for wages, salary, or hire, at a compensa- tion not exceeding $1,500 per year. Sec In re Pilger (D. C.) 118 Fed. 206: In re Gurewita, 121 Fed. 982, 58 C. C. A. 320.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 10:7, KJV]**

And in the same house remain, eating and drinking such things as they give: for the labourer is worthy of his hire. Go not from house to house.

Why: WAGES = the compensation agreed to be paid for work. Christ states the wage-doctrine: 'the labourer is worthy of his hire' — the hire owed for the labour, in His own words.

**[Humanity] — Humanity / Fiction & Film**

**[Herman Melville, Moby-Dick, 1851]**

(paraphrase) The Pequod's crew serve not for wages but for "lays" — shares in the voyage's proceeds, Ishmael signing for the 300th lay — the seaman's compensation system that the maritime branch of this entry points to. (paraphrase)

Why: The entry's maritime branch defines wages as the seaman's compensation for services during a voyage; the novel's lay system is the genuine fictional treatment of how whalemen were actually compensated — shares, not wa...

## WAGON.

A common vehicle for the transportation of goods, wares, and merchan- dise of all descriptions. The term does not include a hackney-coach. Quigley v. Gorham, 5 Cal. 418, 63 Am. Dec. 139.

— Wagoaage. Money paid for carriage in a wagon.

5e apparatus — Not carried into the 5th edition (1979).

## WAIF.

Waifs are goods found, but claim- ed by nobody; that of which every one waives the claim. Also, goods stolen and waived, or thrown away by the thief in his flight, for fear of being apprehended. Whar- ton.

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Waifs are to be distinguished from bona fugitiva, which are the goods of the felon himself, which he abandons in his flight from justice. Brown. See People v. Kaatz, 3 Parker, Cr. R. (N. Y.) 138; Hall v. Gilder- sleeve, 36 N. J. Law, 237.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 22:1-2, KJV]**

Thou shalt not see thy brother's ox or his sheep go astray, and hide thyself from them: thou shalt in any case bring them again unto thy brother. And if thy brother be not nigh unto thee, or if thou know him not, then thou shalt bring it unto thine own house, and it shall be with thee until thy brother seek after it, and thou shalt restore it to him again.

Why: WAIF = goods found but claimed by nobody. Deuteronomy 22:1-2 is the law of found goods: what is found and lost must be kept 'until thy brother seek after it' and restored — the waif's own legal treatment.

## WAIN-BOTE.

In feudal and old English law. Timber for wagons or carts.

5e apparatus — Not carried into the 5th edition (1979).

## WAINABLE.

In old records. That may be plowed or manured; tillable. Cowell; Blount.

5e apparatus — Not carried into the 5th edition (1979).

## WAINAGE.

In old English law. The team and Instruments of husbandry belong- ing to a countryman, and especially to a vil- lein who was required to perform agricul- tural services.

5e apparatus — Not carried into the 5th edition (1979).

## WAINAGIUM.

What is necessary to the farmer for the cultivation of his land. Bar- ring. Ob. St. 12.

5e apparatus — Not carried into the 5th edition (1979).

## WAITING CLERKS.

Officers whose duty it formerly was to wait in attendance upon the court of chancery. The office was abolished In 1812 by St. 5 & 0 Viet. c. 103. Mozley & Whitley.

WAIVE, v. To abandon or throw away ; as when a thief, in his flight, throws aside the stolen goods, In order to facilitate his escape, he Is technically said to waive them.

In modern law, to renounce, repudiate, or surrender a claim, a privilege, a right, or the opi>ortunity to take advantage of some defect, irregularity, or wrong.

A person is said to waive a benefit when he renounces or disclaims it, and he Is said to waive a tort or injury when he abandons the remedy which the law’ gives him for it. Sweet.

ton, 50 N. H. 54; Smiley v. Barker, 83 Fed. 684, 28 C. C. A. 9; Boos v. Ewing, 17 Ohio, 623, 49 Am. Dec. 478.

— Implied waiver. A waiver is implied where one party has pursued such a course of

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conduct with reference to the other party as to evidence an intention to waive his rights or the advan- tage to which he may be entitled, or where the conduct pursued is inconsistent with any other honest intention than an intention of such waiver, provided that the other party concern- ed has been induced by such conduct to act up- on the belief that there has been a waiver, and has incurred trouble or expense thereby. Ast- ritch_v. German-Ameriean Ins. Co., 131 Fed. 20, 65 C. C. A. 251 ; Roumage v. Insurance Co., 13 N. J. Law, 124.—Waiver of exemption. A clause inserted in a note, bond, lease, etc., expressly waiving the benefit of the laws ex- empting limited amounts .of personal property from levy and sale on judicial process, so far as concerns the enforcement of the particular debt or obligation. See Mitchell v. Coates, 47 J'a. 203 ; Wyman v. Gaj- 90 Me. 36, 37 Atl. 325, 60 Am. St. Rep. 238; Howard B. & L. Ash'd 7- Philadelphia & R. R. Co., 102 Pa. 223. —Waiver of protest. An agreement by the indorser of a note or bill to be bound in his character of indorser without the formality of a protest in case of non-payment, or, in the case of paper which cannot or is not required to be protested, dispensing with the necessity of a demand and notice. See First Nat. Bank v. Falkenhan. 94 Cal. 141. 29 Pac. 866 ; Codding- ton v Davis, 1 N. Y. 190.—Waiver of tort. I he election, by an injured party, for purposes of redress, to treat the facts as establishing an implied contract, which he may enforce, instead of an injury by fraud or wrong, for the commit- ting of which he may demand damages, compen- satory or exemplary. Harway v. Major, etc., of City of New York, 1 Iiun (N. Y.) 630.

WAIVE, n. A woman outlawed. The term is. as It were, the feminine of "outlaw," the latter being always applied to a man; "waive," to a woman. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WAIVER.

The renunciation, repudia- tion, abandonment, or surrender of gome claim, right, privilege, or of the opportunity to take advantage of some defect, irregular- ity, or wrong.

The i xiss I rig by of an occasion to enforce a legal right, whereby the right to enforce the same is lost ; a common instance of this is where a landlord waives a forfeiture of a lease by receiving rent, or distraining for rent, which has accrued due after the breach of covenant causing the forfeiture became known to him. Wharton.

This word Is commonly used to denote the declining to take advantage of an irregularity Ib legal proceedings, or of a forfeiture in- curred through breach of covenants in a lease. A gift of goods may be vat red by a disagreement to accept; so a plaintiff may commonly sue in contract waiving the tort. Brown. See Benneeke v. Insurance Co., 105

U. S. 355, 26 L. Ed. 990; Christenson v. Carleton. 69 Vt. 91. 37 Atl. 226; Sbaw v. Spencer, 100 Mass. 395. 97 Am. Dec. 107, 1 Am. Rep. 115; Star Brewery Co. v. Primas, 163 111. 652, 45 N. E. 145 ; Reid v. Field, 83 Va. 26, 1 S. E. 395 ; Caulfield v. Finnegan, 114 Ala. 39, 21 South. 484; Lyman v. Little-

**[TEXT INCOMPLETE — scan limitation]**

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**[Scripture] — Scripture**

**[1 Corinthians 9:12, KJV]**

If others be partakers of this power over you, are not we rather? Nevertheless we have not used this power; but suffer all things, lest we should hinder the gospel of Christ.

Why: WAIVER = the renunciation of a right. Paul's non-use of his apostolic right to maintenance — 'we have not used this power' — is the waiver in act: a right held, and deliberately surrendered. Borderline: epistolary pra…

## WAKE MAN.

The chief magistrate of Rlpon, In Yorkshire.

5e apparatus — Not carried into the 5th edition (1979).

## WAKENING.

In Scotch law. The re- vival of an action. A process by whlcb an action that has lain over and not been In- sisted in for a year and a day, and thus tech- nically said to have “fallen asleep,” is wak- ened, or put in motion again. 1 Forb. Inst, pt. 4, p. 170 ; Ersk. Prin. 4, 1, 33.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ephesians 5:14, KJV]**

Wherefore he saith, Awake thou that sleepest, and arise from the dead, and Christ shall give thee light.

Why: WAKENING = the revival of an action that 'fell asleep.' Ephesians 5:14 commands the same figure: 'awake thou that sleepest, and arise' — the sleeper wakened. Borderline: spiritual register, procedural term; the sleep-…

## WALAPAUZ.

In old Lombardle law. The disguising the head or face, with the in- tent of committing a theft.

5e apparatus — Carried into the 5th edition (1979).

## WALENSIS.

In old English law. A Welshman.

5e apparatus — Not carried into the 5th edition (1979).

## WALESCHERY.

The being a Welsh- man. Spelman.

WALISCtTS. In Saxon law. A servant, or any ministerial officer. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WALKERS.

Foresters who have the care of a certain space of ground assigned to them. Cowell.

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## WALL.

An erection of stone, brick, or other material, raised to some height, and In- tended for purposes of security or Inclosure. In law, this term occurs in such compounds

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as “ancient wall,” “party-wall,” “division- wall,” etc.

-Common wall. A party wall; one which has been built at the common expense of the two owners whose properties are contiguous, or a wall built by one party in which the other has acquired a common right. Campbell v. Mesier, 4 Johns. Ch. (N. Y.) 342, 8 Am. Dec. 570.

WALI-.IA. In old English law. A wall ; a sea-wall; a mound, bank, or wall erected in marshy districts as a protection against the sea. Spelman.

' WAMPUM. Beads made of shells, used its money by the North American Indians, and which continued current in New York as late as 1693.

wand OP PEACE. In Scotch law. A wand or staff carried by the messenger of a court, and which, when deforced, (that is, hindered from executing process.) he breaks, as a symbol of the deforcement,' and protest for remedy of law. 2 Forb. Inst. 207.

' WANXASS. An ancient customary ten- ure of lands; i. e., to drive deer to a stand that the lord may have a shot. Blount, Ten. 140.

5e apparatus — Carried into the 5th edition (1979).

## WANTAGE.

In marine Insurance. Ul- lage; deficiency in the contents of a cask or vessel caused by leaking. Cory v. Boyl- ston Fire & Marine Ins. Co., 107 Mass. 140, 9 Am. Rep. 14.

5e apparatus — Carried into the 5th edition (1979).

## WANTON.

Regardless of another’s rights. See Wantonness.

5e apparatus — Carried into the 5th edition (1979).

## WANTONNESS.

A reckless or malicious and intentional disregard of the property, rights, or safety of others, Implying, active- ly, a licentious or contemptuous willingness to injure and disregard of the consequences to others, and, passively, more than mere negligence, that is, a conscious and inten- tional disregard of duty. See Brasington v. South Bound R. Co., 62 S. C. 325, 40 S. E. 665, 89 Am. St. Rep. 905: Louisville & N. R. Co. v. Webb, 97 Ala. 308, 12 South. 374; Branch v. State, 41 Tex. 625; Ilarward v. Davenport, 105 Iowa, 592, 75 N. W. 487; • Trauerman v. Lipplncott, 39 Mo. App. 488; Everett v. Richmond & D. R. Co., 121 N. C. 519, 27 S. B. 991 ; Birmingham Ry. & El. Co.

V. Pinckard, 124 Ala. 372, 26 South. 880.

Reckless sport; willfully unrestrained ac- tion, running immoderately into excess. Cobb v. Bennett, 75 Pa. 330, 15 Am. Rep. 752.

A licentious act by one man towards the person of another, without regard to his rights; as, for example, if a man should at- tempt to pull off another's hat against his will, in order to expose him to ridicule, the offense would be an assault, and if he touch- ed him it would amount to a battery. Bou- vler.

Bl.Law Dict.(2d Ed.)— 77

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## WAPENTAKE.

In English law. A lo- cal division of the country ; the name is ill use north of the Trent to denote a hundred. The derivation of the name is said to be from “weapon” and “take,” and indicates that the division was originally of a mili- tary character. Cowell ; Brown.

Also a hundred court.

5e apparatus — Not carried into the 5th edition (1979).

## WAR.

A state of forcible contention ; an armed contest between nations; a state of hostility between two or more nations or states. Gro. de Jur. B. lib. 1, c. 1.

Every connection by force between two nations, in external matters, under the au- thority of their respective governments, is a public war. If war is declared in form, it is called “solemn,” and is of the perfect kind; because the whole nation is at war with an- other whole nation. When the hostilities are limited as respects places, persons, and things, the war is properly termed “imper- fect war.” Bas v. Tingy, 4 Dali. 37, 40, 1

L. Ed. 731.

—Articles of war. See Article. — Civil war. An internecine war. A war carried on between opposing masses of citizens of the same country or nation. Before the declaration of independence, the war between Great Britain and the United Colonies was a civil war; but instantly on that event the war changed its na- ture, and became a public war between independ- ent governments. Hubbard v. Exp. Co., 10 R. 1. 244; Brown v. Hiatt, 4 Fed. Cas. 387; Prize Cases, 2 Black, 667. 17 L. Ed. 459; Central

R. & B. Co. v. Ward, 37 Ga. 515.— Laws of war. See Law.— Mixed war. A mixed war is one which is made on one side by public au- thority, and on the other by mere private per- sons. People v. McLeod, 1 Hill (N. Y.) 377, 415, 37 Am. Dec. 328.— Private war. One between private persons, lawfully exerted by way of defense, but otherwise unknown in civil society. People v. McLeod. 25 Wend. (N. Y.) 576, 37 Am. Dec. 328.— Public war. This term includes every contention by force, between two nations, in external matters, under the au- thority of their respective governments. Prize Cases, 2 Black. 606, 17 I* Ed. 459: People v. McLeod. 25 Wend. (N. Y.) 483. 37 Am. Dec. 328. — Solemn war. A war made in form by public declaration: a war solemnlv declared

by one state against another.— War-Offlee. In England. A department of state from which the sovereign issues orders to his forces. Whar- ton.

WARD. 1. Guarding; care: charge; as, the ward of a castle ; so In the phrase “watch and ward.”

2. A division In the city of London com- mitted to the special ward (guardianship) of an alderman.

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3. A territorial division is adopted in most American cities by which the munici- pality is separated into a number of pre- cincts or districts called “wards" for pur- poses of police, sanitary regulations, preven- tion of fires, elections, etc.

4. A corridor, room, or other division of a prison, hospital, or asylum.

5. An infant placed by authority of law under the care of a guardian.

The person over whom or over whose property a guardian is appointed is called his “ward.” Civ. Code Cal. | 237.

— W ard-cora . In old English law. The duty of keeping watch and ward, with a horn to blow upon any occasion of surprise. 1 Mon. Ang. 976.— Ward-fegb. Sax. In old records.

Ward-fee; the value of a ward, or the money paid to the lord for his redemption from ward- ship. Blonnt.— ' Ward-bolding. In old Scotch law. Tenure by military service; the proper feudal tenure of Scotland. Abolished by St. 20 Geo. II. c. 60. Ersk. Prin. 2, 4, 1.— Ward in chancery. An infant who is under the super- intendence of the chancellor.— Ward-mote. In English law. A court kept in every ward in London, commonly called the “ward-mote court," or "inquest.” Cowell.— Ward-penny. In old English law. Money paid to the sheriff or cas- tellains, for the duty of watching and warding a castle. Spelman.— Ward-staff. In old rec- ords. A constable’s or watchman’s staff. Co- well. — Ward-wit. In old English law. Im- munity or exemption from the duty or service of ward, or from contributing to such service. Spelman. Exemption from amercement for not finding a man to do ward. Fleta, lib. 1, c. 47, | 16. — Ward ago. Money paid and contributed to watch and ward. Domesday. — Wards of admiralty. Seamen are Borne times thus des- ignated, because, in view of their general im- providence and rashness, the admiralty courts are accustomed to scrutinize with great care their bargains and engagements, when brought before them, with a view to protecting them against imposition and overreaching.— Ward- ship. In military tenures, the right of the lord to have custody, as guardian, of the body and lands of the infant heir, without any ac- count of profits, until he was twenty-one or she sixteen. In socage the guardian was account- able for profits; and he was not the lord, but the nearest relative to whom the inheritance could not descend, and the wardship ceased at fourteen. In copyholds, the lord was the guard- ian, but was perhaps accountable for profits. Stim. Gloss. See 2 Bl. Comm. 67. — Wardship in chivalry. An incident to the tenure of knight-service.— Wardship in copyholds.

The lord is guardian of his infant tenant by special custom.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 24:6, KJV]**

And ye shall hear of wars and rumours of wars: see that ye be not troubled: for all these things must come to pass, but the end is not yet.

Why: WAR = armed contest between nations. Christ names wars as the standing condition of the age: 'ye shall hear of wars and rumours of wars' — war as the nations' own work.

**[Humanity] — Humanity / Fiction & Film**

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**[Maxim: Si vis pacem, para bellum (Vegetius, De Re Militari)]**

The classical maxim of war as policy: "Si vis pacem, para bellum" — if you want peace, prepare for war — the Roman military doctrine that peace is secured through readiness for armed contention.

Why: The entry defines war as armed contest between nations; the Vegetius maxim is the classical wisdom on war as an instrument of policy. Maxim and attribution confident.

## WARDA.

L. Lat. In old English lav.

Ward ; guard ; protection ; keeping ; custody. Spelman.

A ward ; an infant under wardship. Id. In old Scotch lav. An award ; the judg- ment of a court.

chandlse. State v. Huffman, 136 Mo. 58, 87

S. W. 797 ; Owen v. Boyle, 22 Me. 47 ; State v. Wilson, 47 N. H. 101; Allen v. State, 10 Ohio St 287.

—Warehouse hook. A book used by mer- chants to contain an account of the quantities of goods received, shipped, and remaining in stock.— Warehouse receipt. A receipt giv- en by a warehouseman for goods received by him on storage in his warehouse. Merchants' Warehouse Co. v. McClain (C. C.) 112 Fed. 789; Collins v. Ralli, 20 Hun (N. Y.) 255; Hale v. Milwaukee Dock Co., 29 Wis. 485, 9 Am. Rep. 603; Miller v. Browarsky, 130 Pa. 372, 18 AU. 643. — Warehouse system. A system of pub- lic stores or warehouses, established or author- ized by law, called “bonded warehouses,” in which an importer may deposit goods imported, in the custody of the revenue officers, paying storage, but not being required to pay the cus- toms duties until the goods are finally removed for consumption in the home market, and with the privilege of withdrawing the goods from store for the purpose of re-exportation without paying any duties.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Psalm 121:5, KJV]**

The LORD is thy keeper: the LORD is thy shade upon thy right hand.

Why: WARDA = ward; guard; protection; keeping. Psalm 121:5 names the keeper: 'the LORD is thy keeper' — guard and keeping in the same word the entry defines. WARDEN left bare (one per family).

## WAREHOUSEMAN.

The owner of a warehouse; one who, as a business, and for hire, keeps and stores the goods of others.

WARNING, under the old practice of the English court of probate, was a notice given by a registrar of the principal registry to a person who had entered a caveat, warning him, within six days after service, to enter an appearance to the caveat in the princi- pal registry, and to set forth his interest, concluding with a notice that in default of his doing so the court would proceed to do all such acts, matters, and things as should he necessary. By the rules under the judi- cature acts, a writ of summons has been substituted for a warning. Sweet.

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5e apparatus — Carried into the 5th edition (1979).

## WARNISTURA.

In old records. Gar- niture; furniture; provision. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WARNOTH.

In old English law. An ancient custom, whereby, if any tenant hold- ing of the Castle of Dover failed In paying his rent at the day, be should forfeit double, and, for the second failure, treble, etc. Cow- ell.

5e apparatus — Carried into the 5th edition (1979).

## WARDEN.

A guardian; a keeper. This is the name given to various officers.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Anthony Trollope, The Warden, 1855]**

(paraphrase) Septimus Harding, Warden of Hiram's Hospital in Trollope's The Warden — the guardian-keeper of a charitable foundation, whose right to his office's income is the novel's whole legal-moral question. (paraphrase)

Why: The entry defines the warden as a guardian/keeper, the name of various officers; Harding's wardenship of an ecclesiastical charity — and the attack on its revenues — is the direct fictional embodiment.

## WARDEN OP THE CINQUE PORTS.

In English law. The title of the governor or presiding officer of the Cinque Ports, ( q . v.)

5e apparatus — Not carried into the 5th edition (1979).

## WARDS AND LIVERIES.

In English law. The title of a court of record, estab- lished In the reign of Henry VIII. See Court op Wards and Liveries.

5e apparatus — Carried into the 5th edition (1979).

## WARECTARE.

L. Lat. In old English law. To fallow ground ; or plow up land (designed for wheat) In the spring, in order to let It lie fallow for the better improve- ment. Fleta, lib. 2, c. 33; Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Hosea 10:12, KJV]**

Sow to yourselves in righteousness, reap in mercy; break up your fallow ground: for it is time to seek the LORD, till he come and rain righteousness upon you.

Why: WARECTARE = to fallow ground; to plow up land to let it lie fallow. Hosea 10:12 commands the same husbandry: 'break up your fallow ground' — the fallow ground of the entry, in the prophet's mouth. Borderline: moral us...

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## WAREHOUSE.

A place adapted to tho reception and storage of goods and mer-

**[TEXT INCOMPLETE — scan limitation]**

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## WARP.

A rope attached to some fixed point, used for moving a ship. Pub. St Mass. 1882, p. 1297.

5e apparatus — Not carried into the 5th edition (1979).

## WARRANDICE.

In Scotch law. War- ranty; a clause in a charter or deed by which the grantor obliges himself that the right conveyed shall be effectual to the re- ceiver. Ersk. Prin. 2, 3, 11. A clause where- by the grantor of a charter obligee himself to warrant or make good the thing granted ho the receiver. 1 Forb. Inst pt 2, p. 118. —Absolute warrandice. A warranting or as- suring of property against all mankind. It is, in effect, a covenant of title.— Real warran- dice. An infeoffment of one tenement given in security of another.— Simple warrandice. An obligation to warrant or secure from all sub- sequent or future deeds of the grantor. A simple warranty against the grantors own acts. Whishaw.

. WARRANT

WARRANT, v. Ia conveyancing. To

assure the title to property sold, by an ex- press covenant to that effect In the deed of conveyance. To stipulate by an express cove- nant that the title of a grantee shall be good, and his possession undisturbed.

In contracts. To engage or promise that a certain fact or state of facts, in relation to the subject-matter, is, or shall be, as it is represented to be.

WARRANT, n. I. A writ or precept from a competent authority in pursuance of law, directing the doing of an act, and ad- dressed to an officer or person competent to do the act, and affording him protection from damage, If he does it. People v. Wood, 71 N. Y. 376.

2. Particularly, a writ or precept issued by a magistrate, justice, or other competent authority, addressed to a sheriff, constable, or other officer, requiring him to arrest the body of a person therein named, and bring him before the magistrate or court, to an- swer, or to be examined, touching some of- fense which he is charged with having com- mitted. See, also, Bench- Wars ant; Search- Warrant.

3. A warrant is an order by which the drawer authorizes one person to pay a par- ticular sum of money. Shawnee County v. Carter, 2 Kan. 130.

4. An authority issued to a collector of taxes, empowering him to collect the taxes extended on the assessment roll, and to make distress and sale of goods or land in default of payment.

5. An order issued by the proper author- ities of a municipal corporation, authorizing the payee or holder to' receive a certain sum out of the municipal treasury.

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—Bench warrant. See Bench.— Death warrant. A warrant issued generally by the chief executive authority of a state, directed to the sheriff or other proper local officer or the warden of a jail, commanding him at a certain time to proceed to carry into execution a sen- tence of death imposed by the court upon a con- victed criminal.— Distress warrant. See Dis- tress.—General warrant. A process which formerly issued from the state secretary's of- fice in England to take up (without naming any persons) the author, printer, and publisher of such obscene and seditions libels as were spe- cified in it. It was declared illegal and void for uncertainty by a vote of the house of com- mons on the 22d April, 1700. Whartoh.— Land warrant. A warrant issued at the local land offices of the United States to purchasers of public lands, on the surrender of which at the general land office at Washington, they receive a conveyance from the general government.— Landlord's warrant. See Landlord.— Searck warrant. See that title.— Warrant creditor. See Creditor.— Warrant in bankruptcy. A warrant issued, upon an ad- judication in bankruptcy, directing the marshal to take possession of the bankrupt's property, notify creditors, etc.— Warrant of arrest. See Arrest.— Warrant of attorney. In practice. A written authority, directed to any attorney or attorneys of any court of record, to appear for the party executing it, and receive

a declaration for him in an action at the snit of a person named, and thereupon to confess the same, or to surfer judgment to pass by de- fault ; and it also usually contains a release of errors. 2 Burrill, Pr. 239; Treat v. Tolman, 113 Fed. 892, 51 C. C. A. 522.— Warrant of commitment. A warrant of commitment is a written authority committing a person to cus- tody.—Warrant officers. In the United States navy, these are a class of inferior of- ficers who hold their rank by virtue of a writ- ten warrant instead of a commission, including boatswains, gunners, carpenters, etc.— War- rant to sne and defend. In old practice. A special warrant from the crown, authorizing a party to appoint an attorney to sue or defend for him. 3 Bl. Comm. 25. A special authority given by a party to his attorney, to commence a suit, or to appear and defend a suit, iu his behalf. These warrants are now disused, though formal entries of them upon the record were long retained in practice. 1 Burrill, Pr. 39.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 1:22, KJV]**

Who hath also sealed us, and given the earnest of the Spirit in our hearts.

Why: WARRANDICE = the warranty clause by which the grantor obliges himself that the right conveyed shall be effectual — the assurance of the grant. 2 Corinthians 1:22 names the divine earnest: 'the earnest of the Spirit in…

## WARRANTEE.

A person to whom a warranty is made.

WARRANTIA CHART*. In old prac- tice. Warranty of charter. A writ which lay for one who, being enfeoffed of lands or tenements, with a clause of warranty, was afterwards impleaded In an assize or other action in which he could not vouch to warranty. In such case, it might be brought against the warrantor, to compel him to as- sist the tenant with a good plea or

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defense, or else to render damages and the value of the land, if recovered against the tenant. Cowell; 3 Bl. Comm. 300.

WARRANTIA CUSTODIAL An old

English writ, which lay for him who was challenged to be a ward to another, In re- spect to land said to be holden by knight- service; which land, when it was bought by the ancestors of the ward, was warranted free from such thraldom. The writ lay against the warrantor and his heirs. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WARRANTIA DIEI.

A writ which lay for a man who, having had a day assign- ed him personally to appear in court in any action in which he was sued, was in the mean time, by commandment, employed in the king’s service, so that he could not come at the day assigned. It was directed to the justices that they might not record htm In default for that day. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WARRANTIZARE.

In old conveyan- cing. To warrant ; to bind one’s self, by cov- enant In a deed of conveyance, to defend the grantee In his title and possession.

Wamntlius eat defenders et aeqni- etare tenentem, «ni warrantnm vocavit. In aeisina ana; et tenens de re warrantl exeambinm babeblt ad valentl am. Co.

Litt. 365. To warrant Is to defend and In- sure in peace the tenant, who calls for war- ranty, In his seisin ; and the tenant In war- ranty will have an exchange in proportion to its value.

5e apparatus — Not carried into the 5th edition (1979).

## WARRANTY .

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Carried into the 5th edition (1979).

## WARRANTOR.

One who makes a war- ranty. Shep. Touch. 181.

Warrantor potest excipere quod qne- rena non tenet terrain de qua petit war- rantiam, et qnod donum fnit insnffleiens.

Hob. 21. A warrantor may object that the complainant does not hold the land of which he seeks the warranty, and that the gift was Insufficient.

5e apparatus — Carried into the 5th edition (1979).

## WARRANTY.

In real property law.

A real covenant by the grantor of lands, for himself and his heirs, to warrant and defend the title and,possession of the estate granted, to the grantee and his heirs, whereby, either upon voucher, or Judgment in the writ of warrantia chart ce, and the eviction of the grantee

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by paramount title, the grantor was bound to recompense him with other lands of equal value. Co. Lltt. 305a.

In sales of personal property. A war- ranty Is a statement or representation made by the seller of goods, contemporaneously with and as a part of the contract of sale, though collateral to the express object of it, having reference to the character, quality, or title of the goods, and by which he promises or undertakes to Insure that certain facts are or shall be as he then represents them.

A warranty is an engagement by which a seller assures to a buyer the existence of some fact affecting the transaction, whether past, present, or future. Civ. Code Cal. § 1763.

In contract*. An undertaking or stipu- lation, in writing, or verbally, that a certain fact in relation to the subject of a contract Is or shall be as it Is stated or promised to be.

A warranty differs from a representation in that a warranty must always be given contem- poraneously with, and as part of, the contract; whereas a representation precedes and induces to the contract. And, while that is their dif- ference in nature, their difference in conse- quence or effect is this: that, upon breach of warranty, (or false warranty,) the contract re- mains binding, and damages only are recov- erable for the breach; whereas, upon a false representation, the defrauded party may elect to avoid the contract, and recover the entire price paid. Brown.

The same transaction cannot be characterized as a warranty and a fraud at the same time. A warranty rests upon contract, while fraud, or fraudulent representations have no element of contract in them, but are essentially a tort. When judges or law-writers speak of a fraudu- lent warranty, the language is neither accurate nor perspicuous. If there is a breach of war- ranty, it cannot be said that the warranty was fraudulent, with any more propriety than any other contract can be said to have been fraud- ulent, because there has been a breach of it. On the other hand, to speak of a false represen- tation as a contract or warranty, or as tend- ing to prove a contract or warranty. Is a per- version of language and of correct ideas. Rose v. Hurley, 39 Ind. 81.

-Ia insurance. In the law of Insurance, “warranty" means any assertion or under- taking on the part of the assured, whether

expressed In the contract or capable of be- ing annexed to it, on the strict and literal truth or performance of which the liability of the underwriter Is made to depend. Maude & P. Shipp. 377; Sweet.

— Affirmative warranty. In the law of in- surance, warranties may be either affirmative or promissory. Affirmative warranties may be ei- ther express or implied, but they usually con- sist of positive representations in the policy of the existence of some fact or state of things at the time, or previous to the time, of the making of the policy ; and they are, in general, condi- tions precedent, which, if untrue, whether ma- terial to the risk or not, the policy does not at- tach, as it is not the contract of the insurer. Maupin v. Insurance Co., 53 W. Va. 557, 45 S.

E. 1003; Hendricks v. Insurance Co., 8 Johns, (N. Y.) 1; Cowan v. Insurance Co., 78 Cal. 181.

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20 I’ac. 408.— Collateral warranty, in old conveyancing, was where the heir's title to the land neither was nor could have been derived from the warranting ancestor. Thus where a younger brother released to his father’s dis- seisor, with warranty, this was collateral to the elder brother. The whole doctrine of col- lateral warranty seems repugnant to plain and unsophisticated reason and justice; and even its technical grounds are so obscure that the ablest legal writers are not agreed upon the subject. Wharton. Micheau v. Crawford. 8 N.

J. Law, 106. — Continuing warranty. One which applies to the whole period during which the contract is in force; e. g.. an undertaking in a charter-party that a vessel shall continue to be of the same class that she was at the time the charter-party was made.— Covenant of warranty. .See Covenant. — Express warranty. In contracts and sales, one created by the apt and explicit statements of the seller or person to be bound. See Borrekins v. Bevan, 3 Rawle (Pa.) 36, 23 Am. Dec. 85 ; White v. Stelloh, 74 Wis. 435. 43 N. W. 99; Danforth v. Crookshanks, 68 Mo. App.- 316. In the law of insurance, an agreement expressed in a policy, whereby the assured stipulates that cer- tain facts relating to the risk are or shall be true, or certain acts relating to the subject have been or shall be done. 1 Phil. Ins. (4th Ed.) p. 425; Petit v. German Ins. Co. (C. C.) 98 Fed. 802; /Etna Ins. Co. v. Grube, 6 Minn. 82 (Gil. 32) ; Insurance Co. v. Morgan. 90 Va. 290, 18 S. E. 191.— General warranty. The name of a covenant of warranty inserted in deeds, by which the grantor binds himself, his heirs, etc., to “warrant and forever defend” to the grantee, his heirs, etc., the title thereby con- veyed, against the lawful claims of all persons whatsoever. Where the warranty is only against the claims of persons claiming “by, through, or under” the grantor or his heirs, it is called a “special warranty.”— Implied warranty. A warranty raised by the law as an inference from the acts of the parties or the circumstances of the transaction. Thus, if the seller of a chattel have possession of it and sell it as his own, and not as agent for another, and for a fair price, he is understood to warrant the title. 2 Kent. Comm. 478. A warranty implied from the gen- eral tenor of an instrument, or from particular words used in it. although no express warranty is mentioned. Thus, in every policy of insurance there is an implied warranty that the ship is sea- worthy when the policy attaches. 3 Kent Comm. 287; 1 Phil. Ins. 398.— Lineal war- ranty. In old conveyancing, the kind of war- ranty which existed when the heir derived title to the land warranted either from or through the ancestor who made the warranty.— Person- al warranty. One available in personal ac- tions, and arising from the obligation which one has contracted to pay the whole or part of a debt due by another to a third person. Flanden v. Seelye, 106 XT. S. 718, 26 L. Ed. 1217. — Promissory warranty. A term used chief- ly in the law of insurance, and meaning a war- ranty which requires the performance or omis- sion of certain things or the existence of cer- tain facts after the '-'ginning of the contract of insurance and during its continuance, and the breach of which will avoid the policy. See King v. Relief Ass’n, 35 App. Div. 58, 54 N. Y. Supp. 1057: Maupin v. Insurance Co., 53 W. Va. 5r>7, 45 S. E. 1003; McKenzie v. Insurance Co., 112 Cal. 648, 44 Pac. 022.— Special warranty. A clause of warranty inserted in a deed of lands, by which the grantor covenants, for himself and his heirs, to “warrant and forever defend” the title to the same, to the grantee and his heirs, etc., against all persons claiming “by, through, or

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under” the grantor or his heirs. If the war- ranty is against the claims of all persons what- soever, it is called a “general” warranty.T- Warranty deed. One which contains a cove- nant of warranty.— Warranty, -voucher to. In old practice. The calling a warrantor into court by the party warranted, (when tenant in a real action brought for recovery of such lands,) to defend the suit for him. Co. Litt. 1016.

5e apparatus — Carried into the 5th edition (1979).

## WARREN.

A term In English law for g place in which birds, fishes, or wild beasts are kept.

A franchise or privilege, either by pre- scription or grant from the king, to keep beasts and fowls of warren, which are hares, coneys, partridges, pheasants, etc.

Also any place to which such privilege extends. Mozley & Whitley.

— Free warren. A franchise for the preserv- ing and custody of beasts and fowls of warren. 2 Bl. Comm. 39, 417: Co. Litt. 233. This fran- chise gave the grantee sole right of killing, so far as his warren extended, on condition of ex- cluding other persons. 2 Bl. Comm. 39.

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## WARSCOT.

In Saxon law. A custom- ary or usual tribute or contribution towards armor, or the arming of the forces.

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## WARTH.

In old English law. A cus- tomary payment, supposed to be the same with xcard-penny. Spelinan; Blount.

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## WASH.

A shallow part of a river or arm of the sea.

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## WASH SALE.

In the language of the stock exchange, this is the operation per- formed by a broker who fills an order from one customer to buy a certain stock or com- modity by simply transferring to him the stock or commodity placed in his bands (or ordered to be sold) by another customer, in- stead of going upon the exchange and ex- ecuting both buying and selling orders sep- arately and on the best terms obtainable for the respective customers. See McUlynn v. Seymour, 14 N. Y. St. Rep. 709.

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## WASHING-HORN.

The sounding of a horn for washing before dinner. The custom was formerly observed in the Temple.

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## WASHINGTON, TREATY OF.

A

treaty signed on May 8, 1871, between Great Britain and the United: States of America,

with reference to certain differences arising out of the war between the northern and southern states of the Union, the Canadian fisheries, and other matters. Wharton.

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## WASTE.

Spoil or destruction, done or permitted, to lands, houses, gardens, trees, or other corporeal hereditaments, by the tenant thereof, to the prejudice of the heir, or of him in reversion or remainder. 2 Bl. Comm. 281.

Waste is a spoil and destruction of an estate, either in houses, woods, or lands, by demolish- ing, not the temporary profits only, but the very substance of the thing, thereby rendering it wild and desolate, which the common law ex- presses very significantly by the word "vastum." 3 Bl. Comm. 223.

Waste is a lasting damage to the reversion caused by the destruction, by the tenant for life or years, of such things on the land as are not included in its temporary profits. Proffitt v. Henderson, 29 Mo. 325.

In old English criminal law. A prerog- ative or liberty, on the part of the crown, of committing waste on the lands of felons, by pulling down their houses, extirpating their gardens, plowing their meadows, and cutting down their woods. 4 Bl. Comm. 386.

— Commissive waste. Active or positive

waste; waste done by acts of spoliation or de- struction, rather than by mere neglect ; the same as voluntary waste. See in./ro.— Double waste. See Double.— Equitable waste. Injury to a reversion or remainder in real estate, which is not recognized by the courts of law as waste.: but which equity will interpose to prevent or remedy. Gannon v. Peterson, 193 111. 372, 62

N. E. 210, 55 L. R. A. 701 ; Crowe v. Wilson; 65 Md. 479, 5 Atl. 427, 57 Am. Rep. 343. Oth- erwise defined as an unconscientious abuse of the privilege of non-impeachability for waste at common law, whereby a tenant for life, without impeachment of waste, will be restrained from committing willful, destructive, malicious, or ex- travagant waste, such as pulling down houses, cutting timber of too young a growth, or trees planted for ornament, or for shelter of prem- ises. Wharton.— Impeachment of waste.

Liability for waste committed, or a demand or suit for compensation for waste committed up- on lands or tenements by a tenant thereof who has no right to commit waste. On the other hand, a tenure “without impeachment of waste” signifies that the tenant cannot be called to ac- count for waste committed. — Nul waste. “No waste." The name of a plea in an action of waste, denying the commission of waste, and forming the general issue. —

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Permissive waste. That kind of waste which is a matter of omis- sion only, as by suffering a house to fall for want of necessary reparations. 2 Bl. Comm. 281; Willey v. Laraway, 64 Vt. 559, 25 Atl. 436; Beekman v. Van Dolsen, 63 Hun. 487, 18

N. Y. Supp. 376; White v. Wagner, 4 liar. A

J. (Md.) 391, 7 Am. Dee. 674.— Voluntary waste. Active or positive waste; waste done or committed, in contradistinction to that which results from mere negligence, which is called “permissive” waste. 2 Bouv. Inst. no. 2394. Voluntary or commissive waste consists of in- jury to the demised premises or some part there- of. when occasioned by some deliberate or vol- untary act. as, for instance, the pulling down of a house or removal of floors, windows, doors, furnaces, shelves, or other things affixed to and forming part of the freehold. Regan v. Luthy, 16 Daly. 413, 11 N. Y. Supp. 709. Contrasted with “permissive” waste.— Writ of waato. The name of .a writ to be issued against a tenant who has committed waste of the premises. There were anciently several forms of this writ, adapted to the particular circumstances.

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**[Scripture] — Scripture**

**[Luke 15:13, KJV]**

And not many days after the younger son gathered all together, and took his journey into a far country, and there wasted his substance with riotous living.

Why: WASTE = spoil and destruction of an estate, 'not the temporary profits only, but the very substance of the thing.' The prodigal 'wasted his substance' — waste of the substance itself, in Christ's own telling.

## WASTE-BOOK.

A book used by mer- chants, to receive rough entries or memo- randa of all transactions In the order of their occurrence, previous to their being post- ed In the journal. Otherwise called a “blot- ter.”

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## WASTORS.

In old statutes. A kind of thieves.

WATCH, t>. To keep guard; to stand as sentinel; to be on guard at night, for the preservation of the peace and good order.

WATCH, n. A body of constables .on doty on any particular night

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[John 10:10, KJV]**

The thief cometh not, but for to steal, and to kill, and to destroy: I am come that they might have life, and that they might have it more abundantly.

Why: WASTORS = a kind of thieves. Christ defines the thief's office: he 'cometh not, but for to steal, and to kill, and to destroy' — the thief as stealer, the entry's kind. Borderline: the verse is pastoral-theological; t...

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## WATCH AND WARD.

“Watch” de- notes keeping guard during the night ; “ward,” by day.

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**[Scripture] — Scripture**

**[Ezekiel 3:17, KJV]**

Son of man, I have made thee a watchman unto the house of Israel: therefore hear the word at my mouth, and give them warning from me.

Why: 'Watch' denotes keeping guard during the night; 'ward,' by day. Ezekiel 3:17 is the watchman's commission: 'I have made thee a watchman unto the house of Israel' — the keeping of watch as a charged office. WATCHMAN le...

**[Humanity] — Humanity / Fiction & Film**

**[William Shakespeare, Much Ado About Nothing, 1598]**

Dogberry's charge to the night-watch in Much Ado About Nothing — "If you meet a thief, you may suspect him, by virtue of your office, to be no true man" (Act 3, Sc. 3) — the watch's duty to keep guard and apprehend, played as comedy by the very men who end up catching the villains.

Why: The entry defines watch (by night) and ward (by day) as keeping guard; Dogberry's Watch is the classic fictional night-watch, and the quote — verbatim to my confidence — states their office.

## WATCHMAN.

An officer In many cities and towns, whose duty it Is to watch during the night and take care of the property of the inhabitants.

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## WATER.

As designating a commodity or a subject of ownership, this term has the same meaning in law as in common speech ; but In another sense, and especially in the plural. It may designate a body of water, such as a river, a lake, or an ocean, or an aggregate of such bodies of water, as in the phrases “foreign waters,” “waters of the United States,” and the like.

Water is neither land nor tenement nor sus- ceptible of absolute ownership. It is a mov- able thing and must of necessity continue com- mon by the law of nature. It admits only of a transient usufructuary property, and if it es- capes for a moment, the right to it is gone for- ever, the qualified owner having no legal power of reclamation. It is not capable of being sued for by the name of “water,” nor by a calcula- tion of its cubical or superficial measure; but the suit must be brought for the land which lies at the bottom covered with water. As wa- ter is not land, neither is it a tenement, because it is not of a permanent nature, nor the sub- ject of absolute property. It is not in any pos- sible sense real estate, and hence is not em- braced in a covenant of general warranty. Mit- chell v. Warner, 5 Conn. 518.

—Coast waters. See Coast.— Foreign wa- ters. Those belonging to another nation or country or subject to another jurisdiction, as distinguished from "domestic” waters. The Pilot. 50 Fed. 437, 1 C. C. A. 523.— Inland waters. See Inland.— Navigable waters. See Navigable.— P ercolating waters. Those which pass through the ground beneath the surface of the earth

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without any definite channel, and do not form a part of the body or flow, surface or subterranean, of any water- course. They may be either rain waters which are slowly infiltrating through the soil or wa- ters seeping through the banks or the bed of a stream, and which have so far left the bed and the other waters as to have lost their char- acter as a part of the flow of that stream. Vineland Irr. Dist. v. Azusa Irr. Co., 12ti Cal. 488, 68 Pac. 1057, 40 L. R. A. 820; Los Anfeles v. Pomeroy, 124 Cal. 597, 67 Pac. 585;

ierriman Irr. Co. v. Keel, 25 Utah, 96, 69 Pac. 719; Deadwood Cent. R. Co. v. Barker, 14 S.

D. 558, 86 N. W. 619; Montecito Val. Wa- ter Co. v. Santa Barbara, 144 Cal. 578, 77 Pac. 1113.— Private waters. Non-navigable streams, or bodies of water not open to the re- sort and use of the general public, but entire- ly owned and controlled by one or more in- dividuals.—Public waters. Such as are adapt- ed for the purposes of navigation, or those to which the general public have a right of access, as distinguished from artificial lakes, ponds, and other bodies of water privately owned, or sim- ilar natural bodies of water owned exclusively by one or more persons. See Lamprey v. Met- calf, 52 Minn. 181, 53 N. W. 1139, 18 L. R. A. 670, 38 Am. St. Rep. 541 ; Carter v. Thurston, 68 N. H. 104, 42 Am. Rep. 584 ; Cobb v. Dav- enport, 32 N. J. Law, 360; West Point Wa- ter-Power Co. v. State, 49 Neb. 223, 08 N. W. 507; State v. Theriault, 70 Vt. 617, 41 Atl. 1030, 43 L. R. A. 290, 67 Am. St. Rep. 648.— Subterranean waters. Waters which lie wholly ' beneath the surface of the ground, and which either ooze and seep through the sub- surface strata without pursuing any defined course or channel, (percolating waters.) or flow in a permanent and regular but invisible course, or lie under the earth in a more or less immov- able body, as a subterranean lake.— Surface waters. As distinguished from the waters of a natural stream, lake, or pond, surface waters are such as diffuse themselves over the surface of the ground, following no defined course or channel, and not gathering into or forming any more definite body of water than a mere bog or marsh. They generally originate in rains and melting snows, but the flood waters of a river may also be considered as surface waters if they become separated from the main current, or leave it never to return, and spread out over lower ground. See Schaefer v. Marthaler, 34 Minn. 487, 28 N. W. 726, 57 Am. Rep. 40; Crawford v. Rambo. 44 Ohio St. 279, 7 N. EX 429; New York, etc., R. Co. v. Hamlet Hay Co.. 149 Ind. 344, 47 N. E. 1060; Cairo, etc.,

R. Co. v. Brevoort (C. C.) 62 Fed. 129, 25 L.

R A. 527: Brandenburg v. Zeigler, 62 S. C. 18, 39 S. E. 790, 55 L. R. A. 414, 89 Am. St. Rep. 887 ; Jones v. Hannovan, 55 Mo. 467 ; Tampa Waterworks Co. v. Cline, 37 Fla. 586, 20 South. 780, 33 L. R. A. 376, 53 Am. St. Rep. 262.— Tide waters. See Tide. — Water-bail- iff. The title of an officer, in port towns in England, appointed for the searching of ships. Also of an officer belonging to the city of Lon- don, who had the supervising and search of the fish brought thither. Cowell.—' Water-bay- ley. In American law. An officer mentioned in the colony laws of New Plymouth, (A. D. 1671,) whose duty was to collect dues to the colony for fish taken in their waters. Probably another form of water-bailiff. Burrill. — Wa- ter-course. See that title infra. — Water- gage. A sea-wall or bank to restrain the cur- rent and

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overflowing of the water; also an in- strument to measure water. Cowell.— Water- gang. A Saxon word for a trench or course to carry a stream of water, such as are com- monly made to drain water out of marshes. Co- well.— Water-gavel. In old records. A gavel or rent paid for fishing in or other benefit re- ceived from some river or water. Cowell; Blount.— Water-mark. See that title infra. -Water-measure. In old statutes. A meas- ure greater than Winchester measure by about three gallons in the bushel. Cowell.—' Wsttr- ordeal. In Saxon and old English law. The ordeal or trial by water. The hot-water ordeal was performed by plunging the bare arm up to the elbow it) boiling water, and escaping un- hurt thereby. 4 Bl. Comm. 343. The cold-wa- ter ordeal was performed by casting the person suspected into a river or pond of cold water, when, if he floated therein, without any action

of swimming it was deemed an evidence of bia guilt; but, if be sank, be was acquitted. Id. — W ater- power. The water-power to which a riparian owner is entitled consists of the fall in the stream, when in its natural state, as it passes through his land, or along the boundary of it; or, in other words, it consists of the dif- ference of level between the surface where the stream first touches his land, and the surface where it leaves it. McCalmont v. Whitaker, 3 Rawle, (Pa.) 90, 23 Am. Dec. 102. — Water right. A legal right, in the nature of a cor- poreal hereditament, to use the water of a nat- ural stream or water furnished through a ditch or canal, for general or specific purposes, such as irrigation, mining, power, or domestic use, either to its full capacity or to a measured ex- tent or during a defined portion of the time. See Hill v. Newman, 5 Cal. 445, 63 Am. Dec. 140; Cary v. Daniels. 8 Mete. (Mass.) 480, 41 Am. Dec. 532; Canal Co. v. Hess, 6 Colo. App. 49T, 42 Pac. SO.— Waterscape. An aqueduct or passage for water.— Waters of the United States. All waters within the United States which are navigable for the purposes of com- merce, or whose navigation successfully aids commerce, are included in this term. The Dan- iel Ball. 6 Fed. Cas. 1161.

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## WATER-COURSE.

A natural stream of water fed from permanent or periodical nat- ural sources and usually flowing in a par- ticular direction in a defined channel, hav- ing a bed and banks or sides, and usually discharging Itself into some other stream or body of water. Los Angeles v. Pomeroy, 124 Cal. 697, 57 Pac. 587; Chamberlain v. Hem- ingway, 63 Conn. 1, 27 Atl. 239, 38 Am. St Rep. 330; Rlbordy v. Murray, 177 111. 134, 52 N. E. 325; Halt v. Furrow, 74 Kan. 101, 85 Pac. 934, 6 L. R. A. (N. S.) 157 ; Dlckin- son v. Worcester, 7 Allen (Mass.) 19; Earl v. De Hart 12 N. J. Eq. 284, 72 Am. Dec. 395 ; Barkley v. Wilcox, 86 N. Y. 140, 40 Am. Rep. 519 ; Simmons v. Winters, 21 Or. 35, 27 Pac. 7, 28 Am. St Rep. 727.

There must be a stream usually flowing in a particular direction, though it need not flow con- tinually. It may sometimes be dry. It must flow in a definite channel, having a bed, sides, or banka, and usually discharge itself into some other stream or body of water. It must be something more than a mere surface drainage over the entire face of a tract of land, occasion- ed by unusual freshets or other extraordinary causes. It does not include the water flowing in the hollows or ravines in land, which is the mere surface-water from rain or

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melting snow, and is discharged through them from a higher to a lower level, but which at other times are destitute of water. Such hollows or ravines are not. in legal contemplation, water-courses. Hoyt v. Hudson, 27 Wis. 656. 9 Am. Rep. 473 : San- guinetti v. Pock. 136 Cal. 466. 69 Pac. 98, 89 Am. St. Rep. 169; Luther v. Winnisimmet Co., 9 Cush. (Mass.) 171 ; Pyle v. Richards, 17 Neb. 180. 22 N. W. 370.

But if the topography of the surrounding country is such that water accumulates in great quantities after heavy rains or at the season of melting snows, and descends periodically through a well-defined channel which the force of the water has made for itself, and which is the ac- customed channel through which it flows and has always flowed, such channel is to be deem- ed a natural water-course. Kelly v. Dunning, 39 N. J. Eq. 482; Earl v. De Hart, 12 N. J. Eq. 280. 72 Am. Dec. 395; Simmons v. Winters, 21 Or. 35. 27 Pac. 7, 28 Am. St. Rep. 727.

— mitnral water-course. A natural stream flowing in a defined bed or channel; one formed by the natural flow of the water, as deter- mined bv the general superficies or conforma- tion of the surrounding country, as distinguish- ed from an “artificial” water-course, formed by the work of man, such as a ditch or canal. See Barkley v. Wilcox, 86 N. Y. 140, 40 Am. Rep. 519; Hawley v. Sheldon, 64 Vt. 491, 24 Atl. 717, 33 Am. St. Rep. 941; Porter v. Arm- strong, 129 N. a 101, 39 & E. 799.

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## WATER-MARK.

A mark Indicating the highest point to which water, rises, or the lowest point to which it sinks.

— High-water mark. This term is properly applicable only to tidal waters, and designates the line on the shore reached by the water at the high or flood tide. But it is sometimes air so used with reference to the waters of arti- ficial ponds or lakes, Created by dams in un- navigable streams, and then denotes the highest point on the shores to which the dams can raise the water in ordinary circumstances. Howard v. Ingersoll, 13 How. 423, 14 L. Ed. 189; 8torer v. Freeman, 6 Mass. 437, 4 Am. Dec. 155: Mo- bile Transp. (Jo. v. Mobile, 128 Ala. 335, 30 South. 645, 64 I.. R. A. 333, 86 Am. St Rep. 143; Morrison v. First Nat Bank, 88 Me. 155, 33 Atl. 782; Brady v. Blackinton, 113 Mass. 245; Cook v. McClure. 58 N. Y. 444, 17 Am. Rep. 270. — Low-water mark. That line on the shore of the sea which marks the edge of the waters at the lowest point of the ordinary ebb tide. See Stover v. Jack, 60 Pa. 312. 100 Am. Dec. 506; Gerrish v. Prop’rs of Union Wharf, 20 Me. 395, 46 Am. Dec. 588.

5e apparatus — Carried into the 5th edition (1979).

## WATERING STOCK.

In the language of brokers, adding to the capital stock of a corporation by the Issue of new stock, with- out increasing the real value represented by the capital.

5e apparatus — Not carried into the 5th edition (1979).

## WAVESON.

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In old records. Such goods as, after a wreck, swim or float on the waves. Jacob.

5e apparatus — Not carried into the 5th edition (1979).

## WAX SCOT.

A duty anciently paid twice a year towards the charge of wax candles In churches. Spelman.

5e apparatus — Carried into the 5th edition (1979).

## WAT.

A passage, path, road, or street. In a technical sense, a right of passage over land.

A right of way Is the privilege which an individual, or a particular description of per- sons, as the inhabitants of a village, or tbe owners or occupiers of certain farms, have of going over another's ground. It Is an In- corporeal hereditament of a real nature, en- tirely different from a public highway. Cruise, Dig. tit. 24, $ 1.

The term "way" is derived from the Saxon, and means a right of use for passengers. It may be private or public. By the term "right of way" is generally meant a private way, which is an incorporeal hereditament of that class of easements in which a particular person, or particular description of persons, have an interest and a right, though another person is the owner of the fee of the land in which it is claimed. Wild v. Deig, 43 Ind. 455, 13 Am. Rep. 399. —Private way. A right which a person has of passing over the land of another. Jones v. Venable, 120 Ga. 1, 47 S. E. 549; Whiting v. Dudley, 19 Wend. (N. Y.) 376 ; Kister v. Reeser, 98 Pa. 1, 42 Am. Rep. 608; Kripp v. Curds, 71 Cal. 62, 11 Pac. 879. In another sense

(chiefly in New England) a private way is one laid out by the local public authorities for the accommodation of individuals and wholly or chiefly at their expense, but not restricted to their exclusive use, being subject, like highways, to the public easement of passage. See Metcalf v. Bingham, 3 N. H. 459; Clark v. Boston, C. & M. R. Co., 24 N. H. 118; Denham v. Bristol County, 108 Mass. 202; Butchers', etc., Ass'n v. Boston, 139 Mass. 290, 30 N. E. 94. — Bight of way. See that title.

5e apparatus — Not carried into the 5th edition (1979).

## WAY-BILL.

A writing in which is set down the names of passengers who are car- ried in a public conveyance, or the description of goods sent with a common carrier by land. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## WAY-GOING CROP.

A crop of grain sown by a tenant for a term certain, during his tenancy, but which will not ripen until after the expiration of his lease; to this, by custom in some places, the tenant is entitled.

WAYLEAVE Is a right of way over or through land for the carriage of minerals from a mine or quarry. It Is an easement, being a species of the class called "rights of way," and Is generally created by express grant or reservation. Sweet.

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**[Scripture] — Scripture**

**[Galatians 6:7, KJV]**

Be not deceived; God is not mocked: for whatsoever a man soweth, that shall he also reap.

Why: The way-going crop = the tenant's right to the crop he sowed though it ripen after his lease. Galatians 6:7 states the root doctrine: 'whatsoever a man soweth, that shall he also reap' — the sower's right in his sowin...

## WAYNAGIUM.

Implements of husband- ry. 1 Reeve, Eng. Law, c. 5, p. 268.

5e apparatus — Not carried into the 5th edition (1979).

## WAYS AND MEANS.

In a legislative body, the “committee on ways and means” Is a committee appointed to Inquire into and consider the methods and sources for raising revenue, and to propose means for providing the funds needed by the government.

5e apparatus — Carried into the 5th edition (1979).

## WAYWARDENS.

The English highway acts provide that in every parish forming part of a highway district there shall an- nually be elected one or more waywardens. The waywardens so elected, and the justices for the county residing within the district, form the highway board for the district. Each waywarden also represents his parish in regard to the levying of the highway rates, and in questions arising concerning the liability of his parish to repairs, etc. Sweet

5e apparatus — Not carried into the 5th edition (1979).

## WEALD.

Sax. A wood ; the woody part of a country.

5e apparatus — Not carried into the 5th edition (1979).

## WEALREAP.

In old English law. The robbing of a dead man in his grave.

5e apparatus — Not carried into the 5th edition (1979).

## WEALTH.

All material objects, capable of satisfying human wants, desires, or tastes, having a value in exchange, and upon which human labor has been expended ; i. e., which have, by such labor, been either reclaimed from nature, extracted or gathered from the earth or sea, manufactured from raw materials, Improved, udapted, or cultivated.

"The aggregate of all the things, whether material or Immaterial, which contribute to comfort and enjoyment, which cannot be obtained without more or less labor, and which are objects of frequent barter and sale, is what we usually call ‘wealth.’ ” Bowen, PoL Econ. See Branham v. State, 96 Ga. 307, 22

S. E. 957.

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**[Hip-hop] — Hip-hop**

**[The Notorious B.I.G. feat. Puff Daddy & Mase, 'Mo Money Mo Problems', 1997]**

'It's like the more money we come across / The more problems we see' — wealth as the aggregate of things contributing to comfort and enjoyment, carrying its own burden; the hook states wealth's double edge, which is the lived content of the legal term.

Why: Genuine link: WEALTH is the aggregate of material things of exchange-value contributing to comfort and enjoyment; money is explicitly in the phase's theme list. The hook is one of hip-hop's most quoted, verbatim-certa...

## WEAPON.

An Instrument used in fight- ing;. an instrument of offensive or defen- sive combat. The term is chiefly used, in law, in the statutes prohibiting the carrying of “concealed” or “deadly” weapons. See those titles.

WEAR, or WEIR. A great dam or fence made across a river, or against water, formed of stakes interlaced by twigs of osier, and accommodated for the taking of fish, or to convey a stream to a mill. Cowell ; Jacob.

5e apparatus — Carried into the 5th edition (1979).

## WEAR AND TEAR.

“Natural wear and tear” means deterioration or depreciation In value by ordinary and reasonable use of the subject-matter. Green v. Kelly, 20 N. J. Law, 548.

5e apparatus — Carried into the 5th edition (1979).

## WED.

Sax. A covenant or agreement. CowelL

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 9:13, KJV]**

I do set my bow in the cloud, and it shall be for a token of a covenant between me and the earth.

Why: WED = a covenant or agreement. Genesis 9:13 institutes a covenant with its token: 'it shall be for a token of a covenant between me and the earth' — the covenant-form the Saxon term names. Borderline: divine covenant,...

## WEDBEDRIP.

Sax. In old English law. A customary service which tenants paid to their lords. In cutting down their corn, or do- ing other harvest duties; as if a covenant to reap for the lord at the time of his bid- ding or commanding. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WEEK.

A period of seven consecutive days of time; and, in some uses, the period beginning with Sunday and ending with Sat- urday. See Leach v. Burr, 188 U. S. 510, 23 Sup. Ct 393, 47 L. Ed. 567; Ronkendorff v. Taylor, 4 Pet 361, 7 L. Ed. 882 ; Evans v. Job, 8 Nev. 324; Bird v. Burgsteiner, 100 Ga. 486, 28 S. E. 219 ; Stelnle v. Bell, 12 Abb. Prac. N. S. (N. Y.) 175 ; Russell v. Croy, 164 Mo. 69, 63 S. W. 849 ; Medland v. Linton, 60 Neb. 249, 82 N. W. 866.

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**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

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**[Scripture] — Scripture**

**[Genesis 2:2, KJV]**

And on the seventh day God ended his work which he had made; and he rested on the seventh day from all his work which he had made.

Why: WEEK = a period of seven consecutive days. Genesis 2:2 grounds the seven-day week: God 'ended his work' and 'rested on the seventh day' — the week of seven days in the creation account itself.

## WEHADINC.

In old European law. The judicial combat or duel; the trial by battel.

5e apparatus — Not carried into the 5th edition (1979).

## WEIGHAGE.

In English law. A duty or toll paid for weighing merchandise. It is called "tronage" for weighing wool at the king's beam, or “ pesage ” for weighing other avoirdupois goods. 2 Chit. Com. Law, 16.

5e apparatus — Not carried into the 5th edition (1979).

## WEIGHT.

A measure of heaviness or ponderosity ; and in a metaphorical sense in- fluence, effectiveness, or power to Influence judgment or conduct

— Grots Weight. The whole weight of goods and merchandise, including the dust and dross, and also the chest or bag. etc., upon which tare and tret are allowed.— Weight* of attaeel. See Auncel Weight.— Weight of Evidence. The balance or prepopderance of evidence : the inclination of the greater amount of credible evi- dence, offered in a trial, to support one si^p of the issue rather than the other. The “weight”

• ..WEIR

or "preponderance of proof” is a phrase con- stantly used, the meaning of which is well un- derstood and easily defined. It indicates clear- ly to the jury that the part}' having the bur- den of proof will be entitled to their verdict, if. on weighing the evidence in their minds, they shall find the greater amount of credible evi- dence sustains the issue which is to be estab- lished before them. Haskins v. Haskins, 9 Gray (Mass.) 393.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Daniel 5:27, KJV]**

Thou art weighed in the balances, and art found wanting.

Why: The entry's 'weight of evidence' = the balance or preponderance of evidence. Daniel 5:27 uses the same balance figure for judgment: 'thou art weighed in the balances, and art found wanting' — weighing as the deciding....

## WEIR.

A fence or an Incloaure of twigs, set in a stream to catch fish. Pub. St. Mass, p. 1297; Treat

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v. Chipman, 35 Me. 38.

WELL, adj. In marine insurance. A

term used as descriptive of the safety and soundness of a vessel, in a warranty of her condition at a particular time and place ; as, “warranted well at on .”

- In the old reports. Good, sufficient, un- objectionable in law ; the opposite of “ill.”

WELL, «. A well, as the term Is used in a conveyance, is an artificial excavation and erection in and upon land, which necessarily, from its nature and the mode of its use, in- cludes and comprehends the substantial occu- pation and beneficial enjoyment of the whole premises on which it is situated. Johuson v. Rayner, 6 Gray (Mass.) 107 ; Andrews v. Car- man, 13 Blatchf. 307, 1 Fed. Cas. 808.

5e apparatus — Not carried into the 5th edition (1979).

## WELL KNOWING.

A phrase used in pleading as the technical expression in lay- ing a scienter, (q. v.)

' WELSH MORTGAGE. See Mobtgage.

'.WEND. In old records. A large extent of ground, comprising several juga; a peram- bulation; a circuit. Spelman; Cowell.

- WERA, or WERE. The estimation or price of a man, especially of one slain. In the criminal law of the Anglo-Saxons, every man’s life had its value, called a “were,” or "capitis eeatimdtio.”

5e apparatus — Carried into the 5th edition (1979).

## WEREGELT THEF.

Sax. In old Eng- lish law. A robber who might be ransomed.

' Fleta, lib. 1, c. 47, §13.

WERE GILD, or WERGILD. This was the price of homicide, or other atrocious per- sonal offense, paid partly to the king for the loss of a subject, partly to the lord for the loss of a vassal, and partly to the next of kin of the injured person. In the Anglo- Saxon laws, the amount of compensation varied with the degree or rank of the party slain. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:30, KJV]**

If there be laid on him a sum of money, then he shall give for the ransom of his life whatsoever is laid upon him.

Why: A robber 'who might be ransomed' — the ransomable offender. Exodus 21:30 states the ransom principle: 'he shall give for the ransom of his life whatsoever is laid upon him' — life ransomed by a sum laid. Borderline: t...

**[Humanity] — Humanity / Fiction & Film**

**[Beowulf, c. 1000]**

(paraphrase) Beowulf's feud economy runs on wergild — Hrothgar tells Beowulf he settled Ecgtheow's feud with the Wulfings by paying the blood-price — the compensation for homicide the entry defines, apportioned among king, lord, and kin and scaled to rank. (paraphrase)

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Why: The entry defines wergild as the price of homicide paid to king, lord, and next of kin; the poem's feud-settlements are the genuine literary record of that compensation system in operation.

## WERELADA.

A purging from a crime by the oaths of several persons, according to the degree and quality of the accused. Cow- ell.

5e apparatus — Carried into the 5th edition (1979).

## WERGELT.

In old Scotch law. A sum paid by an offender as a compensation or

satisfaction for the offense; a wereglld, or wergild.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Numbers 35:31, KJV]**

Moreover ye shall take no satisfaction for the life of a murderer, which is guilty of death: but he shall be surely put to death.

Why: WERGELT = the price of homicide paid to the kin — satisfaction for a life taken. Numbers 35:31 states the Mosaic refusal of that price: 'ye shall take no satisfaction for the life of a murderer' — the contrast is the...

## WERP-GELD.

Belg. In European law. Contribution for jettison; average.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jonah 1:5, KJV]**

Then the mariners were afraid, and cried every man unto his god, and cast forth the wares that were in the ship into the sea, to lighten it of them.

Why: WERP-GELD = contribution for jettison; average — the maritime sharing of loss when goods are cast overboard. Jonah 1:5 shows the jettison itself: the mariners 'cast forth the wares that were in the ship into the sea,...

## WESTMINSTER.

A city immediately adjoining London, and forming a part of the metropolis ; formerly the seat of the superior courts of the kingdom.

5e apparatus — Carried into the 5th edition (1979).

## WESTMINSTER CONFESSION.

A

document containing a statement of religious doctrine, concocted at a conference of Brit-, lsli and continental Protestant divines at Westminster, in the year 1043, which subse- quently became the basis of the Scotch Pres- byterian Church. Wharton.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Romans 10:9, KJV]**

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That if thou shalt confess with thy mouth the Lord Jesus, and shalt believe in thine heart that God hath raised him from the dead, thou shalt be saved.

Why: A confession = a statement of religious doctrine. Romans 10:9 states the confession's own form: 'if thou shalt confess with thy mouth the Lord Jesus' — the confessing of doctrine with the mouth. Borderline: the entry…

## WESTMINSTER THE FIRST.

The

statute 3 Edw. I.,. A. D. 1275. .This statute, which deserves the name of a code rather than an act, is divided into fifty-one .chap- ters. Without extending the exemption of, churchmen from civil jurisdiction, it pro-, tects the property of the church from the vio- lence and spoliation of the king and the no- bles, provides for freedom of popular elec- tions, because sheriffs, coroners, and conserv- ators of the peace were still chosen by the freeholders in the county court, and at- tempts had been made to influence the elec- tion of knights of the shire, from the time when they were instituted. It contains a declaration to enforce the enactment of Mag- na Oharta against excessive fines, which might operate as perpetual Imprisonment j enumerates and corrects the abuses of ten- ures, particularly as to marriage of wards-; regulates the levying of tolls, which were Imposed arbitrarily by the barons and by cities and boroughs; corrects and restrains the powers of the kingis escheator and other officers ; amends the criminal law, putting the crime of rape on the footing to which it has been lately restored, as a most grievous, but not capital, offense ; and embraces the subject of procedure in civil and criminal matters, introducing many regulations to render it cheap, simple, and expeditious. 1 Camp. Lives Ld. Ch. p. 167; 2 Reeve, Eng. Law, c. 9, p. 107. Certain parts of this act are repealed by St. 26 & 27 Viet. c. 125. Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## WESTMINSTER THE SECOND.

The

statute 13 Edw. I. St 1, A. D. 1285, other- wise called the “Statute de Donis Condition - alibus." See 2 Reeve, Eng. Law, c. 10, p.’ 163. Certain parts of this act are repealed by St 19 & 20 Viet. c. 64, and St. 26 4 27 Viet c. 125. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## WESTMINSTER THE THIRD, STAT- / UTE OF.

A statute passed in the eighteenth year of Edward I. More commonly known as the “Statute of Quia Emptores," (q. v.) See Barring. Ob. St 167-169.

5e apparatus — Not carried into the 5th edition (1979).

## WEST SAXON LAGE.

The laws of the West Saxons, which obtained In the counties to the south and west of England, from Kent to Devonshire. Blackstone supposes these to have been much the same with the laws of Alfred, being the municipal law of the far most considerable part of fats domin- ions, and particularly including Berkshire, the seat of his peculiar residence. 1 BL Comm. 05.

5e apparatus — Not carried into the 5th edition (1979).

## WETHER.

A castrated ram, at least one year old. In an indictment It may be called a “sheep.” Rex v. Blrket, 4 Car. & P. 216.

5e apparatus — Not carried into the 5th edition (1979).

## WHALE.

A royal fish, the head being the king’s property, and the tall the queen’s. 2 Steph. Comm. 19, 448, 540.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Jonah 1:17, KJV]**

Now the LORD had prepared a great fish to swallow up Jonah. And Jonah was in the belly of the fish three days and three nights.

Why: WHALE = a royal fish. Jonah 1:17 names the great fish of scripture — 'the LORD had prepared a great fish to swallow up Jonah' — the whale's own narrative.

**[Humanity] — Humanity / Fiction & Film**

**[Herman Melville, Moby-Dick, 1851]**

Melville devotes a chapter to the law of the whale — fast-fish and loose-fish — turning the property doctrine into philosophy: "What are the Rights of Man and the Liberties of the World but Loose-Fish?" (Ch. 89).

Why: The entry states the royal-fish doctrine (head to the king, tail to the queen); Melville's chapter is literally about the law of property in whales. The quote is verbatim to my confidence and within the one-to-two-lin…

## WHALER.

A vessel employed in the whale fishery.

5e apparatus — Not carried into the 5th edition (1979).

## WHARF.

A perpendicular bank or mound of timber, or stone and earth, raised on the shore of a harbor, river, canal, etc., or ex- tending some distance Into the water, for the convenience of lading and unlading ships and other vessels. Webster.

A broad, plain place near a river, canal, or other water, to lay wares on that are brought to or from the water. Cowell.

A wharf is a structure erected on a shore be- low high-water mark, and sometimes extending into the channel, for the laying vessels along- side to load or unload, and on <which stores are often erected for the reception of cargoes. Doane v. Broad Street Ass n, 6 Mass. 332 ; Langdon v. New York, 03 N. Y. 151 ; Dubuque v. Stout, 32 Iowa, 47 ; Geiger v. Filor, 8 Fla. 332; Palen v. Ocean City, 64 N. J. Law, 669, 46 AtL 774.

5e apparatus — Carried into the 5th edition (1979).

## WHARFAGE.

Money paid for landing wares at a wharf, or for shipping or taking goods into a boat or

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barge from thence. Cowell.

Strictly speaking “wharfage” Is money due, or money actually paid, for the privilege of landing goods upon, or loading a vessel while moored from, a wharf. 1 Brown, Adm. 87.

5e apparatus — Not carried into the 5th edition (1979).

## WHARFINGER.

One who owns or keeps a wharf for the purpose of receiving and shipping merchandise to or from it for hire

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WHEEL.

An engine of torture used in medieval Europe, on which a criminal was bound while his limbs were broken one by one till he died.

5e apparatus — Carried into the 5th edition (1979).

## WHEELAGE.

Duty or toll paid for carts, etc, passing over certain ground. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WHEN AND WHERE.

Technical words In pleading, formerly necessary in making full defense to certain actions.

5e apparatus — Carried into the 5th edition (1979).

## WHENEVER.

This word, though often used as equivalent to “as soon as,” Is also

often used where the time Intended by it Is, and will be until Its arrival, or for some un- certain period, at least, indeterminate. Rob- inson v. Greene, 14 R. 1. 188.

5e apparatus — Carried into the 5th edition (1979).

## WHEREAS.

A word which implies a re- cital of a past fact. The word “whereas,” when it renders the deed senseless or repug- nant, may be struck out as impertinent, and shall not vitiate a deed in other respects sensible.

5e apparatus — Carried into the 5th edition (1979).

## WHIG.

This name was applied in Scot- land, A. D. 1648, to those violent Covenant- ers who opposed the Duke of Hamilton’s In- vasion of England in order to restore Charles

I. The appellation of “Whig” and "Tory” to political factions was first heard of in A.

D. 1679, and, though as senseless as any cant terms that could be devised, they became in- stantly as familiar In use as they have since continued. 2 Hall. Const Hist c. 12; Whar- ton.

5e apparatus — Not carried into the 5th edition (1979).

## WHIFFING.

A mode of punishment, by the infliction of stripes, occasionally used in England and In a few of the American states.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 25:3, KJV]**

Forty stripes he may give him, and not exceed: lest, if he should exceed, and beat him above these with many stripes, then thy brother should seem vile unto thee.

Why: WHIFFING = punishment by the infliction of stripes. Deuteronomy 25:3 is the Mosaic stripes-law: 'forty stripes he may give him, and not exceed' — the beating bounded by law. WHIFFENG-POST left bare (one per family).

## WHIFFENG-POST.

A post or stake to which a criminal is tied to undergo the pun- ishment of whipping. This penalty is now abolished, except in a few states

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WHITE.

A Mongolian is not a “white person,” within the meaning of the term as used In the naturalization laws of the United States ; the term applies only to persons of the Caucasian race. In re Ah Yup, 5 Sawy 155, Fed. Cas. No. 104.

5e apparatus — Not carried into the 5th edition (1979).

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**[Law] — Law**

**[Ozawa v. United States, 260 U.S. 178 (1922); United States v. Thind, 261 U.S. 204 (1923)]**

The entry's construction — 'white person' in the naturalization laws limited to the Caucasian race — was carried forward by the Supreme Court's racial-prerequisite cases, which held Japanese and Asian-Indian petitioners alike not to be 'white persons' within the naturalization statutes.

Why: The body reports a single 1878 circuit case (In re Ah Yup) as the construction of the statutory term; the footnote adds the two canonical Supreme Court authorities that settled the same question for other groups — the...

## WHITE ACRE.

A fictitious name given to n piece of land, in the English books, for purposes of illustration.

5e apparatus — Carried into the 5th edition (1979).

## WHITE BONNET.

In Scotch law. A fictitious offerer or bidder at a roup or auc- tion sale. Bell.

5e apparatus — Not carried into the 5th edition (1979).

## WHITE MEATS.

In old English law. Milk, butter, cheese, eggs, and any composi- tion of them. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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## WHITE RENTS.

In English law. Rents paid in silver, and called “white rents,” or “ redditus albi,” to distinguish them from rents payable in com, labor, provisions, etc., called “black-rent” or “black-maiL”

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## WHITE SPURS.

A kind of esquires.

Cowell.

WHITE FRIARS . A place in London be- tween the Temple and Blackfrlars, which was formerly a sanctuary, and therefore privileged from arrest Wharton.

5e apparatus — Carried into the 5th edition (1979).

## WHITEHART SILVER.

A mulct on certain lands In or near to the forest of

Whitehart paid Into the exchequer, imposed by Henry III. upon Thomas de la Linda, for killing a beautiful white hart which that king before had spared in hunting. Camd. Brit 160.

5e apparatus — Not carried into the 5th edition (1979).

## WHITSUN FARTHINGS.

Pentecostals,

(fl. V.)

5e apparatus — Not carried into the 5th edition (1979).

## WHITSUNTIDE.

The feast of Pente- cost, being the fiftieth day after Easter, and the first of the four cross-quarter days of the year. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Acts 2:1, KJV]**

And when the day of Pentecost was fully come, they were all with one accord in one place.

Why: WHITSUNTIDE = the feast of Pentecost, the fiftieth day after Easter. Acts 2:1 names 'the day of Pentecost' itself — the feast the entry defines, in the apostolic narrative.

## WHITT ANWAKII.

In old English law. A class of offenders who whitened stolen ox- hides and horse-hides so that they could not be known and Identified.

5e apparatus — Not carried into the 5th edition (1979).

## WHOLE BLOOD.

See BLOOD.

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5e apparatus — Carried into the 5th edition (1979).

## WHOLESALE.

To sell by wholesale Is to sell by large parcels, generally In original packages, and not by retail.

5e apparatus — Carried into the 5th edition (1979).

## WHORE.

A whore is a woman who prac- tices unlawful commerce with men, particu- larly one who does so for hire; a harlot; a concubine; a prostitute. Sheehey ▼. Cok- ley, 43 Iowa, 183, 22 Am. Rep. 236.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 6:26, KJV]**

For by means of a whorish woman a man is brought to a piece of bread: and the adulteress will hunt for the precious life.

Why: WHORE = a woman who practices unlawful commerce with men, particularly for hire. Proverbs 6:26 names her: 'by means of a whorish woman a man is brought to a piece of bread' — the hireling commerce and its ruin.

## WIG.

A place oo the sea-shore or the bank of a river.

5e apparatus — Not carried into the 5th edition (1979).

## WIG A.

A country house or farm. Cow- ell.

5e apparatus — Not carried into the 5th edition (1979).

## WIGK.

Sax. A village, town, or dis- trict Hence, in composition, the territory over which a given jurisdiction extends. Thus, “bailiwick” 1b the territorial jurisdic- tion of a bailiff or sheriff or constable. “Sheriffwick" was also used in the old books.

5e apparatus — Not carried into the 5th edition (1979).

## WIDOW.

A woman whose husband is dead, and who has not married again. The "king’s widow” was one whose deceased hus- band had been the king's tenant in capite; she could not marry again without the royal permission.

— Grass widow. See that title.— Widow- benoh. The share of her husband's estate which a widow is allowed besides her jointure. —Widow’s chamber. In London, the ap- parel of a widow and the furniture of her cham- ber, left by her deceased husband, is so called, and the widow is entitled to it 2 Bl. Comm. 618.— Widow’s quarantine. In old English law. The space of forty days after the death of a man who died seised of lands, during which his widow might remain in her husband's cap- ital mansion-house, without rent, and during

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which time her dower should be assigned. 2 BL Comm. 135.— Widow’s teroe. In Scotch law. The right which a wife has after her husband’s death to a third of the rents of lands in which her husband died infeft ; dower. Bell.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Sense and Sensibility, 1811]**

(paraphrase) Sense and Sensibility opens on the legal precarity of widows: Mrs. Dashwood and her daughters displaced from Norland because the estate passes to the eldest son — the widow's dower-and-jointure world this entry describes. (paraphrase)

Why: The entry defines the widow and her incidents (jointure, quarantine, the king's widow); the novel opens on exactly the widow's position under the inheritance law — dispossessed by the heir.

## WIDOWER.

A man whose wife is dead, and who has not remarried.

5e apparatus — Carried into the 5th edition (1979).

## WIDOWHOOD.

The state or condition of being a widow. An estate Is sometimes settled upon a woman “during widowhood," which Is expressed In Latin, “durante vidu- itate."

5e apparatus — Carried into the 5th edition (1979).

## WIFA.

L. Lat In old European law. A mark or sign; a mark set up on land, to denote an exclusive occupation, or to prohibit entry. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 19:14, KJV]**

Thou shalt not remove thy neighbour's landmark, which they of old time have set in thine inheritance, which thou shalt inherit in the land that the LORD thy God giveth thee to possess it.

Why: WIFA = a mark set up on land to denote exclusive occupation, or to prohibit entry. Deuteronomy 19:14 is the landmark law: the neighbour's 'landmark, which they of old time have set' — the boundary mark not to be moved...

## WIFE.

A woman who has a husband liv- and undivorced. The correlative term Is “husband.”

5e apparatus — Carried into the 5th edition (1979).

## WIFE’S EQUITY.

When a husband Is compelled to seek the aid of a court of equity for the purpose of obtaining the possession or control of his wife’s estate, that court will recognize the right of the wife to have a suitable and reasonable provision made, by settlement or otherwise, for herself aiid her children, out of the property thus brought within Its jurisdiction. This right Is called the “wife’s equity,” or “equity to a settle- ment” See 2 Kent Comm. 139.

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5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[1 Timothy 5:8, KJV]**

But if any provide not for his own, and specially for those of his own house, he hath denied the faith, and is worse than an infidel.

Why: The wife's equity = her right to a suitable provision out of her estate for herself and her children. 1 Timothy 5:8 states the provision duty: 'if any provide not for his own... he hath denied the faith' — provision f... [re-homed from "WIFE'S EQUITY" to 'WIFE’S EQUITY' (OCR headword / parser-merge artifact)]

**[Humanity] — Humanity / Fiction & Film**

**[Henrik Ibsen, A Doll's House, 1879]**

(paraphrase) Nora Helmer's forged loan in A Doll's House — a wife who cannot borrow in her own name, contracting in secret because the law gives her no standing — the married woman's property disability that the wife's equity was equity's answer to. (paraphrase)

Why: The entry defines equity's intervention to secure provision for the wife out of her own property; the play dramatizes the underlying disability — the wife's lack of independent contracting capacity — that made the doc...

## WIGREVE.

In old English law. The overseer of a wood. Cowell.

WILD ANIMALS, (or animals ferte nat- u r<B.) Animals of an untamable disposition.

5e apparatus — Not carried into the 5th edition (1979).

## WILD LAND.

Land In a state of nature, as distinguished from improved or culti- vated land. Clark v. Phelps, 4 Cow. (N. Y.) 203.

5e apparatus — Carried into the 5th edition (1979).

## WILD’S CASE, RULE IN.

A devise to

B. and his children or issue, B. having no issue at the time of the devise, gives him an estate tail ; but If he have issue at the time,

B. and his children take Joint estates for life. 0 Coke, 16b; Tudor, Lead. Caa. Real Prop. 642, 58L

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WILL.

A will Is the legal expression of a man’s wishes as to the disposition of his property after his death. Code Ga. 1882, f 2394; Swinb. Wills, f 2.

An instrument lu writing, executed In form of law, by which a person makes a disposi- tion of his property, to take effect after his death.

Except where it would be inconsistent with the manifest intent of the legislature, the word “will" shall extend to a testament, and to a codicil, and to an appointment by will, or by writing in the nature of a will, in exercise of a power; and also to any other testamentary

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disposition. Code Ya. 1837, f 2511.

A will is an instrument by which a person makes a disposition of his property, to take ef- fect after his decease, and which is, in its own nature, ambulator; and revocable during his life. It is this ambulatory quality which forms the characteristic of wills; for though a dispo- sition by deed may postpone the possession or enjoyment, or even the vesting, until the death of the disposing party, yet the postponement is in such case produced by the express terms, and does not result from the nature of the instrnment McDaniel v. Johns, 45 Miss. 041. And see Jasper v. Jasper, 17 Or. 500, 22 I'ae. 152 ; Leathers v. Greenacre, 53 Me. 567; Cover v. Stem, 67 Md. 449, 10 Atl. 231, 1 Am. St. Hep. 406; George v. Green, 13 N. H. 524; In re Harrison's Estate, 196 Pa. 576, 46 Atl. 8&S; Bayley v. Bailey, 5 Cush. (Mass.) 249 ; Keegan v. Stanley, 11 Lea (Tenn.) 324 ; Lane v. Hill, 63 N. H. 398, 44 Atl. 597 ; Conklin v. Eger- ton, 21 Wend. (N. Y.) 436.

A will, when it operates upon personal prop- erty, is sometimes called a "testament," and when upon real estate, a "devise;" but the more general and the more popular denomination of the instrument embracing equally real and per- sonal estate is that of "last will and testament." 4 Kent, Comm. 501.

In criminal law. The power of the mind which directs the action of a man.

In Scotch practice. That part or clause of a process which contains the mandate or command to the officer. Bell.

— Ambulatory will. A changeable will (am- bulatoria voluntas), the phrase denoting the power which a testator possesses of altering his will during his life-time. See Hattersley v. Bis- sett, 50 N. J. Eq. 577. 25 Atl. 332.— Double will. See Double.— Estate at will. This estate entitles the grantee or lessee to the pos- session of land during the pleasure- of both the grantor and himself, yet it creates no sure or durable, right, and is, bounded by no definite limits as to duration. It must be at the re- ciprocal will of both parties, (for, if it be at the will of the lessor only, it is a lease for life.) and the dissent of either determines it. Whar- tlon. — Holographic will. One written entire- ly by the testator with his own hand. — Mutual will. See Testament. — Nuncupative will. See that title.— Statute of wills. See Wills Act, infra.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Bleak House, 1852–53]**

(paraphrase) The Jarndyce will in Bleak House — generations of construction litigation that devour the entire estate in Chancery costs — the testamentary instrument as an engine of litigation. (paraphrase)

Why: The entry defines the will as the legal expression of wishes for post-death disposition; the Jarndyce will is the archetypal fictional will — contested until nothing remains.

## WHLA.

Iu Hindu law. The relation be- tween a master or patron and his freedmau, and the relation between two persons who had made a reciprocal testamentary contract. Wharton.

' WILLFUL. Proceeding from a conscious Inotion of the will; Intending the result which

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actually comes to pass; designed; In. tentional ; malicious.

A Willful differs essentially from a negligent act. The one is positive and the other negative. Intention is always separated from negligence by a precise line of demarkation. Sturm v. Atlantic Mut. Ins. Co., 38 N. Y. Super, Ct. 317.

In common parlance, “willful” is used in the sense of “intentional,” as distinguished from “accidental” or “involuntary.” But language of a statute affixing a punishment to acts done willfully may be restricted to such acts done with an unlawful intent. U. S. v. Boyd (C. C.) 45 Fed. 855 ; State v. Clark, 29 N. J. Law, 96.

5e apparatus — Not carried into the 5th edition (1979).

**[Scripture] — Scripture**

**[1 Corinthians 7:22, KJV]**

For he that is called in the Lord, being a servant, is the Lord's freeman: likewise also he that is called, being free, is Christ's servant.

Why: WHLA in Hindu law = the relation between a master or patron and his freedman. 1 Corinthians 7:22 names the freedman: 'he that is called in the Lord, being a servant, is the Lord's freeman' — the freedman's own verse....

## WILLFULLY.

Intentionally. In charg- ing certain offenses, It is required that they should be stated to be willfully done. Arcbb. Crim. PI. 51, 58 ; Leach, 556.

5e apparatus — Not carried into the 5th edition (1979).

**[Humanity] — Humanity / Fiction & Film**

**[Fyodor Dostoevsky, Crime and Punishment, 1866]**

(paraphrase) Raskolnikov's deliberate murder of the pawnbroker in Crime and Punishment — the willful act, proceeding from a conscious motion of the will, intending the result that comes to pass, and the torment of having intended it. (paraphrase)

Why: The entry defines willfully as intentionally, required to be pleaded for certain offenses; the novel is the anatomy of the willful criminal act and its aftermath.

## WILLS ACT.

In England. 1. The stat- ute 32 Hen. VIII. c. 1, passed in 1540, by which persons seised In fee-simple of lands holden In socage tenure were enabled to de- vise the same at their will and pleasure, ex- cept to bodies corporate ; and those who held

estates by the tenure of chivalry were en- abled to devise two-third parts thereof.

2. The statute 7 Wm. IV. & 1 Viet c. 26, passed in 1837, and also called “Lord Lang- dale's Act.” This act permits of the disposi- tion by will of every kind of Interest In real and personal estate, and provides that all wills, whether of real or of personal estate, shall be attested by two witnesses, and that such attestation shall be sufficient Other important alterations are effected by this statute in the law of wills. Mosley & Whit- ley.

5e apparatus — Carried into the 5th edition (1979).

## WINCHESTER MEASURE.

The stand- ard measure of England, originally kept at Winchester. 1 BL Comm. 274.

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5e apparatus — Carried into the 5th edition (1979).

## WINCHESTER, STATUTE OF.

A stat- ute passed in the thirteenth year of the reign of Edward I., by which the old Saxon law of polio? was enforced, with many addition- al provisions. 2 Ueeve, Eng. Law. 163 j Crabb, Hist Eng. Law, 189.

5e apparatus — Not carried into the 5th edition (1979).

## WINDING UP.

The name applied In England to the process of settling the ac- counts and' liquidating the assets of a part- nership or company, for the purpose of mak- ing distribution and dissolving the concern.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Matthew 25:19, KJV]**

After a long time the lord of those servants cometh, and reckoneth with them.

Why: WINDING UP = the settling of accounts and liquidating of assets for distribution and dissolution. The parable's reckoning — 'the lord of those servants cometh, and reckoneth with them' — is the settling of accounts it…

## WINDING-UP ACTS.

In English law. General acts of parliament, regulating set- tlement of corporate affairs on dissolution.

5e apparatus — Carried into the 5th edition (1979).

## WINDOW.

An opening made in the wall of a house to admit light and air, and to furnish a view or prospect The use of this word In law is chiefly in connection with the doctrine of ancient lights and other rights of adjacent owners.

—Window tan. A tax ou windows, levied on bouses which contained more than six win- dows, and were worth more than £5 per an- num; established by St. 7 Wm. III. c. 18. SL 14 & 15 Viet. c. 36, substituted for this tax a tax on inhabited houses. Wharton.

5e apparatus — Carried into the 5th edition (1979).

## WINDSOR FOREST.

A royal forest founded by Henry VIII.

5e apparatus — Not carried into the 5th edition (1979).

## WINTER CIRCUIT.

An occasional cir- cuit appointed for the trial of prisoners. In England, and in some cases of civil causes, between Michaelmas and Hilary terms.

5e apparatus — Not carried into the 5th edition (1979).

## WINTER HEYNING.

The season be- tween 11th November and 23d April, which is excepted from the liberty of

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commonlng in certain forests. St. 23 Car. II. c. 3.

5e apparatus — Not carried into the 5th edition (1979).

## WISBY, LAWS OF.

The name given to a code .of maritime laws promulgated at Wisby, then the capital of Gothland, in Swe- den, in the latter part of the thirteenth cen- tury. This compilation resembled the laws of Oleron in many respects, and was early adopted, as a system of sea laws, by the com- mercial nations of Northern Europe. It

formed the foundation for the subsequent code of the Hanseatic League. A transla- tion of the Laws of Wlsby may be seen In the appendix to 1 Pet Adm. And see 3 Kent Comm. 13.

5e apparatus — Not carried into the 5th edition (1979).

## WIST A.

In Saxon law. Half a hide of land, or sixty acres.

5e apparatus — Carried into the 5th edition (1979).

## WIT.

To know; to learn; to be Inform- ed. Used only In the Infinitive, to-xcit, which term Is equivalent to "that Is to say," “name- ly," or “videlicet.”

5e apparatus — Carried into the 5th edition (1979).

## WIT AM.

The purgation from an offense by the oath of the requisite number of wit- nesses.

5e apparatus — Not carried into the 5th edition (1979).

## WIT AN.

In Saxon law. Wise men; per- sons of Information, especially in the laws; the king’s advisers; members of the king’s council; the optimates, or principal men of the kingdom. 1 Spence, Eq. Jur. 11, note.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 11:14, KJV]**

Where no counsel is, the people fall: but in the multitude of counsellors there is safety.

Why: WIT AN = wise men; the king's advisers; members of the king's council. Proverbs 11:14 states the counsel doctrine: 'in the multitude of counsellors there is safety' — the king's council as the ground of safety. WITENA...

## WITCHCRAFT.

Under Sts. 33 Hen.

VIII. c. 8, and 1 JaC. I. c. 12, the offense of witchcraft, or supposed intercourse with evil spirits, was punishable with death. These acts were not repealed till 1730. 4 Bl. Comm. 60, 61.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

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**[Arthur Miller, The Crucible, 1953]**

The Salem trials in The Crucible — witchcraft as a capital offense on spectral evidence. John Proctor's refusal to sign a false confession: "I have given you my soul; leave me my name!" (Act 4).

Why: The entry defines the capital offense of witchcraft under the Henrician and Jacobean statutes; the play is the definitive dramatization of a witchcraft prosecution. The Proctor line is verbatim to my confidence.

## W1TE.

Sax. A punishment, pain, pen- alty, mulct, or criminal fine. Cowell.

WTTEXDEF, A taxation of the West Saxons, Imposed by the public council of the kingdom.

. WITENA DOM. In Saxon law. The Judgment of the county court, or other court of competent jurisdiction, on the title to property, real or personal. 1 Spence, Eq. Jur. 22.

5e apparatus — Not carried into the 5th edition (1979).

## WITENAGEMOTE.

“The assembly of wise men.” This was the great national council or parliament of the Saxons in Eng- land, comprising the noblemen, high ecclesi- astics, and other great thanes of the king- dom, advising and aiding the king in the general administration of government.

5e apparatus — Carried into the 5th edition (1979).

## WITENS.

The chiefs of the Saxon lords or thanes, their nobles, and wise men.

5e apparatus — Not carried into the 5th edition (1979).

## WITH ALL FAULTS.

This phrase, used in a contract of sale, implies that the purchaser assumes the risk of all defects and imperfections, provided they do not destroy the identity of the thing sold.

5e apparatus — Carried into the 5th edition (1979).

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**[Law] — Law**

**[Law: UCC § 2-316(3)(a) — exclusion of implied warranties by 'as is' / 'with all faults' language]**

The 1910 definition states the phrase's effect in general terms; the modern codification makes it operative: unless the circumstances indicate otherwise, all implied warranties are excluded by expressions like 'as is' or 'with all faults.'

Why: The body defines the phrase's common-law effect with no statute; the footnote supplies the controlling modern provision under which the phrase actually does its work today — the 'modern counterpart the body lacks' cla...

## WITH STRONG HAND.

In pleading. A technical phrase Indispensable in describ- ing a forcible entry In an indictment. No other word or circumlocution will answer the same purpose. Rex v. Wilson, 8 Term R. 867.

WliHuKAWIHO A JUROR. In prac- tice. The withdrawing of one of the twelve Jurors from the box, with the result that, the jury being now found to be incomplete, no further proceedings can be had In the cause. The withdrawing of a juror is always by the agreement of the

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parties, and is frequently done at the recommendation of the judge, where it is doubtful whether the action will lie ; and in such case the consequence Is that each party pays his own costs. It is, how- ever, no bar to a future action for the same cause. 2 Tidd, Pr. 861, 862; 1 Archb. Pr.

K. B. 196; Wabash R. Co. v. McCormick, 23 Ind. App. 258, 55 N. E. 251.

5e apparatus — Carried into the 5th edition (1979).

## WITHDRAWING RECORD.

In prac- tice. The withdrawing by a plaintiff of the nisi prius or trial record filed In a cause, just before the trial Is entered upon, for the pur- pose of preventing the cause from being tried. This may be done before the jury are sworn, and afterwards, by consent of the defend- ant’s counsel. 2 Tidd, Pr. 851; 1 Archb. Pr.

K. B. 189; 3 Chit. Pr. 870.

5e apparatus — Carried into the 5th edition (1979).

## WITHERNAM.

In practice. A taking by way of reprisal; a taking or a reprisal Of other goods, in lieu of those that were formerly taken and eloigned or withholden.

2 Inst. 141. A reciprocal distress, In lieu of a previous one which has been eloigned.

3 Bl. Comm. 148.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:24, KJV]**

Eye for eye, tooth for tooth, hand for hand, foot for foot,

Why: WITHERNAM = a taking by way of reprisal; reciprocal distress in lieu of a previous one eloigned. The lex talionis — 'eye for eye, tooth for tooth' — is the root principle of reciprocal taking. Borderline: general prin…

## WITHERS ARE.

An apostate, or per- fidious renegade. Cowell.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WITHOUT DAT.

A term used to sig- nify that an adjournment or continuance is Indefinite or final, or that no subsequent time is fixed for another meeting, or for further proceedings. See Sine Die.

5e apparatus — Not carried into the 5th edition (1979).

## WITHOUT IMPEACHMENT OF / WASTE.

The effect of the insertion of this clause in a lease for life is to give the tenant the right to cut timber on the estate, without making himself thereby liable to an action for waste.

5e apparatus — Carried into the 5th edition (1979).

## WITHOUT PREJUDICE.

Where an of- fer or admission is made "without preju- dice," or a motion is denied or a bill In equi- ty dismissed "without prejudice," It is meant as a declaration that no rights or privileges of the party concerned are to be considered as thereby waived or lost except in so far as may be expressly conceded or decided. See Genet v. Delaware & H. Canal Co., 170

N. Y. 278, 63 N. E. 350; O'Keefe v. Irvington Real Estate Co., 87 Md. 190, 39 Atl. 428; Ray v. Adden, 50 N. H. 84, 9 Am. Rep. 175; Seamster v. Blackstock, 83 Va. 232, 2 S. E. 36, 5 Am. St. Rep. 202 ; Taylor v. Slater, 21

R. I. 104, 41 Atl. 1001 ; Kempton v. Burgess, 136 Mass. 192.

5e apparatus — Carried into the 5th edition (1979).

## WITHOUT RECOURSE.

This phrase, used lu making a qualified indorsement of £

negotiable instrument, signifies that the in- dorser means to save himself from liability to subsequent holders, and is a notification that, if payment is refused by the parties primarily liable, recourse cannot be had to him. See Thompson v. First State Bank, 102 Ga. 690, 29 S. E. CIO; Epler v. Funk, 8 Pa. 468; Youngberg v. Nelson, 51 Minn. 172, 53

N. W. 629, 38 Am. St. Rep. 497; Bankhead v. Owen, 60 Ala. 461.

5e apparatus — Carried into the 5th edition (1979).

## WITHOUT RESERVE.

A term applied to a sale by auction, indicating that no price is reserved.

5e apparatus — Carried into the 5th edition (1979).

## WITHOUT STINT.

Without limit; without any specified number.

5e apparatus — Carried into the 5th edition (1979).

## WITHOUT THIS, THAT.

In pleading. Formal words used in pleadings by way of traverse, particularly by way of special trav- erse, (q. v.,) importing an express denial of some matter of fact alleged in a previous pleading. Steph. PI. 168, 169, 179, 180.

WITNESS, v. To subscribe one's name to a deed, will, or other document, for the pur- pose of attesting its authenticity, and prov- ing Its execution, If required, by bearing witness thereto.

WITNESS, n. In the primary sense of the word, a witness is a person who has knowledge of an event. As the most direct mode of acquiring knowledge of an event is by seeing it, "witness" has acquired the sense of a person who is present at and observes a transaction. Sweet See State v. Desforges, 47 La. Ann. 1167, 17 South. 811; In re Lo- see's Will, 13 Misc. Rep. 298, 34 N. Y. Supp. 1120; Bliss v. Shuman, 47 Me. 248.

A witness is a person whose declaration under oath (or affirmation) is received as evi-

dence for any purpose, whether such declara- tion be made on oral examination or by deposition or affidavit Code Civ. Proc. Cal. | 1878 ; Gen. St. Minn. 1878, c. 73, f 6.

One who is called upon to be present at a transaction, as a wedding, or the making of a will, that he may thereafter. If necessary, testify to the transaction.

In conveyancing. One who sees the Ex- ecution of an instrument, and subscribes it, for the purpose of confirming its authenticity by his testimony.

—Adverse witness. A witness whose mind discloses a bias hostile to the party examining him; not a witness whose evidence, being hon- estly given, is adverse to the case of the examinant. Brown ; Greenough v. Eccles, 5 C.

B. (N. S.) 801.— Attesting witness. See At- testation.—Competent witness. See Competent.—Credible witness. See Cbedible. — Prosecuting witness. See that title.— Subscribing witness. See that title.— Swift witness. See that title.

WITNESSING PART, in a deed or other formal instrument, is that part which conies after the recitals, or, where there are no recitals, after the parties. It usually com- mences with a reference to the agreement or intention to be effectuated, then states or re- fers to the consideration, and concludes with the operative words and parcels, if any. Where a deed effectuates two distinct ob- jects, there are two witnessing parts. 1 Dav. Prec. Conv. 63, et seq. ; Sweet

WITTINGLY means with knowledge and by design, excluding only cases which are the result of accident or forgetfulness, and Including cases where one does an unlawful act through an erroneous belief of his right Osborne v. Warren, 44 Conn. 357.

5e apparatus — Not carried into the 5th edition (1979).

## WOLD.

Sax. In England. A down or champaign ground, hilly and void of wood. Cowell; Blount

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WOLF'S HEAD.

In old English law. This term was used as descriptive of the con- dition of an outlaw. Such persons were said to carry a wolf’s head, ( caput lupinum ;) for If caught alive they were to be brought to the king, and If they defended themselves they might be slain and their heads carried to the king, for they were no more to be ac- counted of than wolves. Termes de la Ley, “Woolferthfod.”

5e apparatus — Carried into the 5th edition (1979).

## WOMEN.

All the females of the human species. All such females who have arrived at the age of puberty. Dig. 50, 16, 13.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Genesis 1:27, KJV]**

So God created man in his own image, in the image of God created he him; male and female created he them.

Why: WOMEN = all the females of the human species. Genesis 1:27 names their creation: 'male and female created he them' — the female of the species in the creation account itself.

## WONG.

Sax. In old records. A field. Spelman ; Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WOOD-OORN.

In old records. A cer- tain quantity of oats or other grain, paid by customary tenants to the lord, for liberty to pick up dead or broken wood. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

## WOOD-GELD.

In old English law. Money paid for the liberty of taking wood In a forest. Cowell.

Immunity from such payment Spelman.

5e apparatus — Carried into the 5th edition (1979).

## WOOD LEAVE.

A license or right to cut down, remove, and use standing timber on a given estate or tract of land. Osborne v. O'Reilly, 42 N. J. Eq. 467, 9 Atl. 209.

5e apparatus — Carried into the 5th edition (1979).

## WOOD-MOTE.

In forest law. The old name of the court of attachments; other- wise called the "Forty-Days Court" Cowell; 8 Bl. Comm. 71.

5e apparatus — Carried into the 5th edition (1979).

## WOOD PLEA COURT.

A court held twice in the year in the forest of Clun, In Shropshire, for determining all matters of wood and' agistments. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WOOD-STREET COMPTER.

The

name of an old prison in London.

5e apparatus — Not carried into the 5th edition (1979).

## WOODS.

A forest ; land covered with a large and thick collection of natural forest

trees. The old books say that a grant of "all his woods" (omnes boscos suoa) will pass the land, as well as the trees growing upon It Co. LItt. 46. See Averitt v. Murrell, 49

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N. C. 323; Hall v. Cranford, 50 N. C. 3; Achenbach v. Johnston, 84 N. C. 264.

5e apparatus — Carried into the 5th edition (1979).

## WOODWARDS.

Officers of the forest, whose duty consists In looking after the wood and vert and venison, and preventing of- fenses relating to the same. Manw. 189.

WOOD-SACK* The seat of the lord chan- cellor of England In the house of lords, be- ing a large square bag of wool, without back or arms, covered with red cloth. Webster; Brande.

5e apparatus — Carried into the 5th edition (1979).

## WOOD SORTERS' DISEASE.

In med- ical jurisprudence. A popular name for ma- lignant anthrax, a disease characterized by malignant pustules or carbuncles, caused by Infection by putrid animal matter containing the bacillus antbracls, and chiefly prevalent among persons whose business Is to handle wool and hides, such as tanners, butchers, and herdsmen. See Bacon v. United States Mut Ace. Ass'n, 123 N. Y. 304, 25 N. E. 399, 9L.E.A. 617, 20 Am. St. Rep. 748.

5e apparatus — Not carried into the 5th edition (1979).

## WORDS.

As used In law, this word gen- erally signifies the technical terms and phrases appropriate to particular instruments, or aptly fitted to the expression of a par- ticular intention In legal Instruments. See the subtitles following.

—Words of art. The vocabulary or termin- ology of a particular art or science, and es- pecially those expressions which are idiomatic or peculiar to it. See Cargill v. Thompson, 57 Minn. 534, 59 N. W. 638.— Words of limita- tion. See Limitation.— Words of procrea- tion. To create an estate tail by deed, it is necessary that words of procreation should be used in order to confine the estate to the de- scendants of the first grantee, as in the usual form of limitation, — to A. and the heirs of his body." Sweet.— Words of purchase. See PUBCHABB.

5e apparatus — Carried into the 5th edition (1979).

## WORK AND DABOR.

The name of one of the common' counts In actions of as sump- git, being for work and labor done and ma- terials furnished by the plaintiff for the de- fendant.

WORK-BEAST, or WORK-HORSE.

These terms mean an animal of the horse kind, which can be rendered fit for service, as well as one of maturer age and in actual use. Winfrey v. Zimmerman, 8 Bush (Ky.) 587.

5e apparatus — Not carried into the 5th edition (1979).

## WORK-HOUSE.

A place where con- victs (or paupers) are confined and kept at labor.

5e apparatus — Carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, Oliver Twist, 1838]**

Dickens's parish workhouse — the poor-law institution that raises Oliver Twist; the workhouse boy's rebellion in a single sentence: "Please, sir, I want some more."

Why: The entry defines the work-house as the place where paupers are confined and kept at labor; Oliver's upbringing there is the archetypal fictional workhouse. The quote is verbatim to my confidence.

## WORKING DAYS.

In settling lay-days, or days of demurrage, sometimes the con- tract specifies “working days ;” In the compu- tation, Sundays and custom-house holidays are excluded. 1 Bell, Comm. 577.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:9-10, KJV]**

Six days shalt thou labour, and do all thy work: But the seventh day is the sabbath of the LORD thy God: in it thou shalt not do any work, thou, nor thy son, nor thy daughter, thy manservant, nor thy maidservant, nor thy cattle, nor thy stranger that is within thy gates:

Why: WORKING DAYS excludes Sundays (and holidays) from computation. The Sabbath commandment grounds the distinction: 'six days shalt thou labour' — the working days — 'but the seventh day is the sabbath... in it thou shalt...

## WORKMAN.

One who labors ; one who is employed to do business for another.

5e apparatus — Carried into the 5th edition (1979).

## WORKS.

This term means sometimes a mill, factory, or other establishment for per- forming industrial labor of any sort, (South St. Joseph Land Co. v. Pitt, 114 Mo. 135, 21

S. W. 449,) and sometimes a building, struc- ture, or erection of any kind upon land, as in the civil-law phrase “new works.”

—New works. A term of the civil law com- prehending every sort of edifice or other struc- ture which is newly commenced on a given es- tate or lot. Its importance lies chiefly jn the fact that a remedy is given (“denunciation of new works”) to an adjacent proprietor whose property would be injured or subjected to a more onerous servitude if such a work were al- lowed to proceed to completion. — Publio works. Works, whether of construction or adaptation, undertaken and carried out by the national, state, or municipal authorities, and de- signed to subserve some purpose of public nec- essity, use, or convenience; such as public build- ings, roads, aqueducts, parks, etc. See Ellis v. Common Council, 123 Mich. 567, 82 N. W. 244 ; Winters v. Duluth, 82 Minn. 127, 84 N. W. 788.

5e apparatus — Carried into the 5th edition (1979).

## WORDD.

This term sometimes denotes all persons whatsoever who may have, claim, or acquire an Interest in the subject-matter; as In saying that a judgment in rem binds “all the world.”

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5e apparatus — Not carried into the 5th edition (1979).

## WORSHIP.

The act of offering honor and adoration to the Divine Being. Reli- gious exercises participated In by a number of persons assembled for that purpose, the disturbance of which Is a statutory offense in many states. See Hamsher v. Hamsher, 132

I1L 273, 22 N. E. 1123, 8L.R.A, 556; State v. District Board, 76 Wls. 177, 44 N. W. 967, 7 L. R. A. 330, 20 Am. St. Rep. 41; State v. Buswell, 40 Neb. 158, 58 N. W. 728, 24 L. R.

A. 68.

In English l*w. A title of honor or dig- nity used in addresses to certain magistrates and other persons of rank or office.

—Public worship. This term may mean the worship of God, conducted and observed un- der public authority; or it may mean worship in an open or public place, without privacy or concealment; or it may mean the performance of religious exercises, under a provision for an equal right in the whole public to participate in its benefits; or it may be used in contradis- tinction to worship in the family or the closet. In this country, what is called "public wor- ship” is commonly conducted by voluntary so- cieties, constituted according to their own no- tions of ecclesiastical authority and ritual pro- priety, opening their places of worship, and ad- mitting to their religious services such persons, and upon Buch terms, and subject to such reg- ulations, as they may choose to designate and establish. A church absolutely belonging to the public, and in which all persons without restric- tion have equal rights, such as the public enjoy in highways or public landings, is certainly a very rare institution. Attorney General v. Mer- rimack Mfg. Co., 14 Gray (Mass.) 586.

WORT, or WORTH. A curtilage or country farm.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[John 4:24, KJV]**

God is a Spirit: and they that worship him must worship him in spirit and in truth.

Why: WORSHIP = the act of offering honor and adoration to the Divine Being. Christ defines it: worship 'in spirit and in truth' — the act's own doctrine, in His own words.

## WORTHIEST OF BLOOD.

In the Eng- lish . law of descent. A term applied to males, expressive of the preference given to them over females. See 2 Bl. Comm. 234- 240.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Deuteronomy 21:17, KJV]**

But he shall acknowledge the son of the hated for the firstborn, by giving him a double portion of all that he hath: for he is the beginning of his strength; the right of the firstborn is his.

Why: The preference given to males in descent. Deuteronomy 21:17 states the firstborn's right: 'the right of the firstborn is his' — the double portion, the male-preference in inheritance in Mosaic law. Borderline: the ent...

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## WORTHING OF LAND.

A certain quantity of land so called In the manor of 'Klngsland, In Hereford. The tenants are called “worthies." Wharton.

WOUND.' In criminal cases, the defini- tion of a “wound” is an Injury to the person by which the skin Is broken. State v. Leon- ard, 22 Mo. 451; Morlarty v. Brooks, 6 Car. & P. 684.

“In legal medicine, the term ‘wound’ is used In a much more comprehensive sense than In surgery. In the latter. It means strictly a solution of continuity ; In the for- mer, injuries of every description that af- fect either the hard or the soft parts ; and accordingly under It are comprehended bruises, contusions, fractures, luxations,” etc. 2 Beck, Med. Jur. 106.

5e apparatus — Not carried into the 5th edition (1979).

## WOUNDING.

An aggravated species of ■assault and battery, consisting In one per- son giving another some- dangerous hurt 3 Bl. Comm. 121.

Wreccum marls signifieat 111a bona quae nanfragio ad terram pellnntnr. A

wreck of the sea signifies those goods which are driven to shore from a shipwreck.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 21:25, KJV]**

Burning for burning, wound for wound, stripe for stripe.

Why: WOUNDING = an aggravated assault consisting in dangerous hurt. The lex talionis names it: 'wound for wound' — the wound as the measured wrong, answered in kind.

## W RECK.

At common law. Such goods as after a shipwreck are cast upon the land by the sea, and, as lying within the ter- ritory of some county, do not belong to the Jurlsdiction'of the admiralty, but to the com- mon law. 2 lust. 167 ; 1 Bl. Comm. 200.

Goods cast ashore from a wrecked vessel, where no living creature has escaped from the wreck alive; and which are forfeited to . the crown, or to persons having the fran- chise of wreck. Cowell.

In American law. Goods cast ashore •by the sea, and not claimed by the owner within a year, or other specified period; and which, in such case, become the property of the state. 2 Kent, Comm. 322.

In maritime law. A ship becomes a wreck when. In consequence of injuries re- ceived, she is rendered absolutely unnaviga- ble. or unable to pursue her voyage, without repairs exceeding the half of her value. Wood v. Insurance Co., 6 Mass. 479, 4 Am. Dee. 163; Collard v. Eddy, 17 Mo. 355; Baker v. Hoag, 7 N. T. 558. 59 Am. Dec. 431 ; Peete v. Insurance Co., 19 Fed. Cas. 104 ; Lacaze v. State, 1 Add. (Fa.) 99.

•-Wreck commissioner* are persons ap- pointed by the English lord chancellor under the merchant shipping act, 1876, (section 29,) to hold investigations at the request of the board

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of trade into losses, abandonments, damages.

and casualties of or to ships on or near the coast of the United Kingdom, whereby loss of life is caused. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## WRECKFREE.

Exempt from the for- feiture of shipwrecked goods and vessels to the king. Cowell.

5e apparatus — Carried into the 5th edition (1979).

## WRIT.

A precept in writing, couched in the form of a letter, running in the name of the king, president, or state, issuing from a court of Justice, and sealed with its seal, addressed to a sheriff or other officer of the law, or directly to the person whose action the court desires to command, either as the commencement of a suit or other proceeding or as incidental to its progress, and requiring the performance of a specified act, or giving authority nnd commission to have it done.

For the names and description of various particular writs, see the following titles.

Is old English law. An instrument ip the form of a letter; a letter or letters o'f attorney. This is a very ancient sense of the word.

In the old books, “writ" is used as equiv- alent to “action ;” hence writs are some- times divided into real, personal, and mixed.

Is Scotch law. A writing; an instru- ment in writing, as a deed, bond, contract, etc. 2 Forb. Inst. pt. 2, pp. 175-179.

—Alias writ. A second writ issued in the same cause, where a former writ of the same kind has been issued without effect.— Close writ. In English law, a name given to certain letters of the sovereign, sealed with his great seal and directed to particular persons and for particular purposes, which, not being proper for public inspection, were closed up and sealed on the outside ; also, a writ directed to the sheriff instead of to the lord. 2 Bl. Comm. 346, 3 Reeve, Eng. Law, 45. — Concurrent writs. Duplicate originals, or several writs running at the same time for the same purpose, for serv- ice on or arrest of a person, when it is not known where he is to be found; or for service on several persons, as when there are several defendants to an action. Mozley & Whitley. — Judicial writs. In English practice. Such writs as issue under the private seal of the courts, and not under the great seal of Eng- land, and are tested or witnessed, not in the king’s name, but in the name of the chief judge of the court out of which they issue. The word “judicial'’ is used in contradistinction to “orig- inal;” original writs being such as issue out of chancery under the great seal, and are witness- ed in the king's name. See 3 Bl. Comm. 282. Pullman's Palace-Car Co. v. Washburn (C. C.) 66 Fed. 792 Junior writ. One which is issued, or comes to the officer’s hands, at a later time than a similar writ, at the suit of anoth- er party, or on a different claim, against the same defendant. — Original writ. In English practice. An original writ was the process for- merly in use for the commencement of per- sonal actions. It' was a mandatory letter

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from the king, issuing out of chancery, sealed with the great seal, and directed to the sheriff of the county wherein the injury was committed, or was supposed to have been committed, requir- ing him to command the wrong-doer or accus- ed party either to do justice to the plaintiff or else to appear in court and answer the accusa- tion against him. This writ is now disused, the writ of summons being the process prescribed by the uniformity of process act for commencing

personal actions; and under the judicature act, 1873, all suits, even in the court of chancery, are to be commenced by such writs of summons. Brown.— Patent writ. In old practice, an Open writ ; one not closed or sealed up.— Per- emptory writ. An original writ, called from the words of the writ a "*i tc feoerit seourum," and which directed the sheriff to cause the de- fendant to appear in court without any option given him, provided the plaintiff gave the sher- iff security effectually to prosecute his claim. The writ was very occasionally in use, and only Where nothing was specifically demanded, but Only a satisfaction in general ; as in the case of writs of trespass on the case, wherein no debt or other specific thing was sued for, but only damages to be assessed by a jury. Brown.— Prerogative writs. Those issued by the ex- ercise of the extraordinary power of the crown (the court, in modern practice) on proper cause shown ; namely, the writs of procedendo, man - damut, prohibition, quo warranto, habeas corp- us, and certiorari.

5e apparatus — Not carried into the 5th edition (1979).

### WRIT DE BONO ET MALO.

See De

Bono et Mato; Assize.

5e apparatus — Not carried into the 5th edition (1979).

# D

### DO.

In English law. The name of a writ formerly Issued by the secular courts, for the execution, by burning, of a man who had been convicted In the ecclesiastical courts Of heresy.

5e apparatus — Not carried into the 5th edition (1979).

# W

### WRIT DE RATION ABIEI PARTE / BONORUH.

A writ which lay for a wid- ow. against the executor of her deceased husband, to compel the executor to set ofT to her a third part of the decedent's personalty, after payment of his debts. Fltzh. Nat Brev. 122, L.

5e apparatus — Not carried into the 5th edition (1979).

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## WRIT OF ASSISTANCE.

The name of a writ which issues from the court of chan- cery, in aid of the execution of a judgment at law, to put the complainant Into posses- sion of lands adjudged to him, when the sheriff cannot execute the judgment. See Emeriek v. Miller (Ind. App.) (12 X. E. 285; Hagerman v. Heltzel, 21 Wash. 444. 58 Pac. 586; O'Connor v. Schaeffel (City Ct. N. Y.) 11 N. Y. Supp. 737 ; Knight v. Houghtailing,

B4 N. O. 410.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF ASSOCIATION.

In Eng- lish practice. A writ whereby certain per- sons (usually the clerk of assize and his sub- ordinate officers) are directed to associate themselves with the justices and serjeants; and they are required to admit the said per- sons into their society In order to take the assizes. 3 Bl. Comm. 50.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF ATTACHMENT.

A writ em- ployed to enforce obedience to an order or judgment of the court. It commands the sheriff to attach the disobedient party and to have him before the court to answer his contempt. Smith, Act 176.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF CONSPIRACY.

A writ which anciently lay against persons who had Bl.IiAW Dict.(2d Ed.) — 78

conspired to Injure the plaintiff, under the same circumstances which would now give him an action on the case.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF COVENANT.

A writ Which lies where a party claims damages for breach of covenant; i. e., of a promise under seal.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF DEBT.

A writ which lies where the party claims the recovery of a debt; i. e., a liquidated or certain sum of money alleged to be due to him.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF DECEIT.

The name of a writ which lies where one man has done anything in the name of another, by which the latter is damnified and deceived. Fitzh. Nat. Brev. 95, E.

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## WRIT OF DEXJVERY.

A writ of ex- ecution employed to enforce a judgment for the delivery of chattels. It commands the sheriff to cause the chattels mentioned in the writ to be returned to the person who has obtained the judgment; and. If the chattels cannot : l?e found, to distrain the person against whom the judgment was given un- til he returns them. Smith, Act. 175 ; Sweet.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF DETINUE.

A writ which lies where a party claims the specific recov- ery of goods and chattels, or deeds and writ- ings, detained from him. This is seldom used; trover is the more frequent remedy. In cases where it may be brought. Bouvier.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF DOWER.

This Is either a writ of dower unde nihil habet, which lies for a widow, commanding the tenant to as- sign her dower, no part of which has yet been set off to her; or a writ of right of dower, whereby she seeks to recover the re- mainder of the dower to which she Is enti- tled, part having been already received from the tenant

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## WRIT.

OF EJECTMENT. The writ in an action of ejectment, for the recovery of lands. See Ejectment.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF ENTRY.

A real action to re- cover the possession of land where the ten- ant (or owner) has been disseised or other- wise wrongfully dispossessed. If the disseis- or has aliened the land, or if It has descend- ed to his heir, the writ of entry is said to be In the per, because it alleges that the defend- ant (the alienee or heir) obtained possession through the original disseisor. If two alien- ations (or descents) have taken place, the writ is In the per and cui, because it alleges that the defendant (the second alienee) ob- tained possession through the first alienee, to whom the original disseisor had aliened it. If more than two alienations (or descents) have taken place, the writ is in the post, be- cause it simply nlleges that the defendant ac- quired possession after the original disseisin.

Co. Litt 2386; 3 Bl. Comm. 180. The writ of entry Was abolished, with other real ac- tions, In England, by St. 3 & 4 Wm. IV. c. 27, g 36, but. Is still in use in a few of the states of the Union. Sweet.

5e apparatus — Carried into the 5th edition (1979).

## WHIT OF ERROR.

A writ Issued from a court of appellate jurisdiction, directed to the judge or judges of a court

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of record, re- quiring them to remit to the appellate court the record of an action before them, in which a final judgment has been entered, in order that examination may be made of certain errors alleged to hare been committed, and that the judgment may be reversed, cor- rected, or affirmed, as the case may require.

A writ of error is defined to be a commis- sion by which the judges of one court are authorized to examine a record upon which a judgment was given in another court, and, on such examination, to affirm or reverse the same, according to law. Cohens v. Virginia, 6 Wheat. 409, 5 L. Ed. 257.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF EXECUTION.

A writ to put in force the judgment or decree of a court.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF FALSE JUDGMENT.

A

writ which appears to be still in use to bring appeals to the English high court from in- ferior courts not of record proceeding accord- ing to the course of the common law. Archb. Pr. 1427.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF FORMEDON.

A writ which lies for the recovery of an estate by a person claiming as issue in tail, or by the remain- der-man or reversioner after the termination of the entail. See Formedon.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF INQUIRY.

In common-law practice. A writ which issues after the plaintiff in an action has obtained a judg- ment by default, on an unliquidated claim, directing the sheriff, with the aid of a jury, to inquire into the amount of the plaintiff’s demand and assess his damages. Lennon v. Rawitzer, 57 Conn. 583, 19 Atl. 334; Havens v. Hartford & N. R. Co., 28 Conn. 70.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF MAINPRIZE.

In English law. A writ directed to the sheriff, (either generally, when any man is imprisoned for a bailable offense and bail has been refused, or specially, when the offense or cause of commitment is not properly bailable below,) commanding him to take sureties for the prisoner’s appearance, commonly called •‘mainpernors,” and to set him at large. 8 Bl. Comm. 128.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF MESNE.

In old English law. A writ which was so called by reason of the words used in the writ,

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namely, “Unde idem

A. qui mediua eat inter O. et prwfatum B.;“ that is, A., who is mesne between C., the lord paramount, and B., the tenant paravail. Co. Litt. 100a.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF POSSESSION.

This is the

writ of execution employed to enforce a Judg- ment to recover the possession of land. It commands the sheriff to enter the land and give possession of it to the person entitled under the judgment. Smith, Act 175.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF PRAECIPE.

This writ is also called a “writ of covenant” and is sued out by the party to whom lands are to be con- veyed by fine, the foundation of which is a supposed agreement or covenant that the one shall convey the land to the other. 2 Bl. Comm. 349.

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF PREVENTION.

This name is given to certain writs which may be is- sued in anticipation of suits which may arise. Co. Litt 100.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF PROCLAMATION.

In Eng- lish law. By the statute 31 Ellz. c. 3, when an exigent is sued out a writ of proclama- tion shall issue at the same time, command- ing the sheriff of the county where the de- fendant dwells to make three proclamations thereof, in 'places the most notorious, and most likely to come to his knowledge, a month before the outlawry shall take place. 8 Bl. Comm. 284.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF PROTECTION.

In England, the king may, by his writ of protection, priv- ilege any person in his service from arrest in civil proceedings during a year and a day; but this prerogative Is seldom, if ever, exercised. Archb. Pr. 687. See Co. Litt 130a.

WRIT OF QUARE IMP EDIT. 8ee

Quark Impedit.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF RECAPTION.

If, pending an action of replevin for a distress, the de- fendant distrains again for the same rent or service, the owner of the goods is not driven to another action of replevin, but is allowed a writ of recaption, by which he recovers the goods and damages for the

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defendant* contempt of the process of the law in making a second distress while the matter is tub judice. Woodf. Landl. & Ten. 484.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF RESTITUTION.

A writ

which is issued on the reversal of a judg- ment commanding the sheriff to restore to the defendant below the thing levied upon, if it has not been sold, and, if it has been sold, the proceeds. Bac. Abr. "Execution," Q.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF REVIEW.

(1) A general

designation of any form of process issuing from an appellate court and intended to bring up for review the record or decision of the court below. Burrell v. Burrell, 10 Mass. 222; Hopkins v. Benson, 21 Me. 401; West v. Oe Moss, 50 La. Ann. 1349, 24 South. 325

(2) In code practice, a substitute for, or equivalent of, the writ of certiorari. Cali- fornia & O. Land Co. v. Gowen (C. C.) 48 Fed. 775; Burnett v. Douglas County, 4 Or. 389; In re Winegard, 78 Hun, 58, 28 N. Y. Supp. 1039.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF RIGHT.

This was a writ which lay for one who had the right of property, against another who had the right of possession and the actual occupation. The writ properly lay only to recover corporeal hereditaments for an estate in fee-simple; but there were other writs, said to be "in the nature of a writ of right," available for the recovery of incorporeal hereditaments or of lands for a less estate than a fee-simple. Brown.

In another sense of the term, a "writ of right" is one which is gran table as a mat- ter of right, as opposed to a "prerogative writ," which is issued only as a matter of grace or discretion.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF SUMMONS.

The writ by which, under the English judicature acts, all actions are commenced.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF TOUT.

In English law. The name of a writ to remove proceedings on a writ of right patent from the court-baron into the county court

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WRIT OF TRIAL.

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In English law. A writ directing an action brought in a supe- rior court to be tried in an Inferior court or before the under-sheriff, under St. 3 & 4 Wm. IY. c 42. It is now superseded by the county courts act of 1867, c. 142, f 6, by which a defendant in certain cases, is en- abled to obtain an order that the action be tried in a county court. 8 Steph. Comm. 515, n. ; Mosley & Whitley.

5e apparatus — Carried into the 5th edition (1979).

## WRIT OF WASTE.

The name of a writ to be issued against a tenant who has com- mitted waste of the premises. There are several forms of this writ Fitzh. Nat Brev. 125.

5e apparatus — Carried into the 5th edition (1979).

## WRIT FRO RETORNO HABENDO.

A writ commanding the return of the goods to the defendant upon a judgment in his favor in replevin, upon the plaintiff’s de- fault

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## WRITER OF THE TALLIES.

In Eng- land. An officer of the exchequer whose duty it was to write upon the tallies the let- ters of tellers’ bills.

5e apparatus — Not carried into the 5th edition (1979).

## WRITER TO THE SIGNET.

In Scotch law. An officer nearly corresponding to an attorney at law, in English and American practice. "Writers to the signet” called al- so “clerks to the signet” derive their name from the circumstance that they were anciently clerks in the office of the secretary of state, by whom writs were prepared and Is- sued under the royal signet or seal; and. when the signet became employed In Judicial proceedings, they obtained a monopoly of the privileges of acting as agents or attor- neys before the court of session. Brande, voc. “Signet.”

5e apparatus — Not carried into the 5th edition (1979).

## WRITING.

The expression of ideas by letters visible to the eye. Clason v. Bailey, 14 Johns. (N. Y.) 491. The giving an out- ward and objective form to a contract, will, etc., by means of letters or marks placed upon paper, parchment, or other material sub- stance.

In the most general sense of the word, “writing” denotes a document, whether man- uscript or printed, as opposed to mere spoken words. Writing is essential to the validity of certain contracts and other transactions. Sweet

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

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**[Exodus 31:18, KJV]**

And he gave unto Moses, when he had made an end of communing with him upon mount Sinai, two tables of testimony, tables of stone, written with the finger of God.

Why: WRITING = the giving of outward and objective form to a contract, will, etc., by letters or marks. The tables of testimony — 'written with the finger of God' — are writing in its highest form: the law given outward, o...

## WRITING OBLIGATORY.

The tech- nical name by which a bond Is described in pleading. Denton v. Adams, 6 Vt 40.

5e apparatus — Carried into the 5th edition (1979).

## WRITTEN LAW.

One of the two lead- ing divisions of the Roman law, comprising the leges, plebiscite., senatus-consulta, prin- cipum placita, magistratuum edicta, and re- sponse prvdentum. Inst 1, 2, 3.

Statute law; law deriving its force from, express legislative enactment 1 Bl. Comm. 62, 85.

5e apparatus — Carried into the 5th edition (1979).

## WRONG.

An injury; a tort; a violation of right or of law.

The idea of rights naturally suggests the cor- relative one of wrongs; for every right is ca- pable of being violated. A right to receive pay- ment for goods sold (for example) implies a wrong on the part of him who owes, but with- holds the price; a right to live in personal se- curity, a wrong on the part of him who com- mits personal violence. And therefore, while, in a general point of view, the law is intended for the establishment and maintenance of rights, we find it, on closer examination, to be dealing both with rights and wrongs. It first fixes the character and definition of rights, and then, with a view to their effectual security, proceeds to define wrongs, and to devise the means by which the latter shall be prevented or redressed. 1 Steph. Comm. 126.

—Private wrongs. The violation of public or private rights, when considered in reference to the injury sustained by the individual, and consequently as subjects for civil redress or compensaton. 3 Steph. Comm. 356; Hunting- ton v. Attrill, 146 U. S. 657, 13 Sup. Ct. 224, 36 L. Ed. 1123; Tomlin v. Hildreth, 65 N. J. Law, 438, 47 Atl. 649. — Public wrongs. Vio- lations of public rights and duties which affect the whole community, considered as a communi- ty; crimes and misdemeanors. 3 Bl. Comm. 2; 4 Bl. Comm. 1.— Real wrong. In old English law. An injury to the freehold.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Colossians 3:25, KJV]**

But he that doeth wrong shall receive for the wrong which he hath done: and there is no respect of persons.

Why: WRONG = an injury; a tort; a violation of right or of law. Colossians 3:25 states the wrong's recompense: 'he that doeth wrong shall receive for the wrong which he hath done' — the wrong answered without respect of pe...

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## WRONG-DOER.

One who commits an Injury; a tort-feasor.

5e apparatus — Carried into the 5th edition (1979).

## WRONGFULLY INTENDING.

In tbe

language of pleading, this phrase is approp'rlate to be used in alleging the malicious motive of the defendant in committing the injury which forms the cause of action.

5e apparatus — Carried into the 5th edition (1979).

## WRONGOUS.

In Scotch law. Wrong- ful ; unlawful ; as wrongous imprisonment Ersk. Prlii. 4, 4, 25.

5e apparatus — Not carried into the 5th edition (1979).

## WURTH.

In Saxon law. Worthy; com- petent; capable. A.theswurthe, worthy of oath; admissible or competent to be sworn. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

## WTTE.

In old English law. Acquit- tance or immunity from amercement.

X

5e apparatus — Not carried into the 5th edition (1979).

# X

## X.

In the written terminology of various arts and trades, where two or more dimen- sions of the same piece or article are to be stated, this letter is a well-known symbol equivalent to the word “by.” Thus, the for- mula “3 x 5 in.” will be understood, or may be explained by parol evidence, to mean “three by five Inches,” that is, measuring three inches in one direction and five in another. See Jaqua v. Wltham & A. Co., 106 Ind. 647, 7 N. E. 314.

5e apparatus — Not carried into the 5th edition (1979).

## XENODOCHTUM.

In the civil and old English law. An Inn allowed by public li- cense, for the entertainment of strangers, and other guests. Calvin. ; Cowell.

A hospital ; a place where sick and infirm persons are taken care of. Cowell.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**
**[Hebrews 13:2, KJV]**

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Be not forgetful to entertain strangers: for thereby some have entertained angels unawares.

Why: XENODOCHTUM = an inn for the entertainment of strangers; a hospital for the sick. Hebrews 13:2 commands the xenodochy's own work: 'be not forgetful to entertain strangers' — hospitality as the institution. XENODOCHY l...

## XENODOCHY.

Reception of strangers; hospitality. Enc. Lond.

5e apparatus — Not carried into the 5th edition (1979).

## XYXON.

A punishment among the Greeks answering to -our stocks. Wharton.

Y

5e apparatus — Not carried into the 5th edition (1979).

# Y

## YA ET NAY.

In old records. Mere assertion and denial, without oath.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[2 Corinthians 1:17-18, KJV]**

When I therefore was thus minded, did I use lightness? or the things that I purpose, do I purpose according to the flesh, that with me there should be yea yea, and nay nay? But as God is true, our word toward you was not yea and nay.

Why: Mere assertion and denial, without oath — yea and nay. 2 Corinthians 1:17-18 weighs the yea-and-nay itself: our word 'was not yea and nay' — assertion and denial held to truth. Borderline: epistolary self-defense, old...

## YACHT.

A light sea-going vessel, used only for pleasure-trips, racing, etc. Webster. See 22 St. at Large, 666 (U. S. Comp. St 1901, p. 2345) ; Rev. St U. S. jj§ 4215-4218 (U. S, Comp. St 1901, p. 2847).

5e apparatus — Not carried into the 5th edition (1979).

## YARD.

A measure of length, containing three feet or thirty-six inches.

A piece of land inclosed for the use and ac- commodation of the inhabitants of a house.

YARD LAND, or virgata torrce, is a quan- tity of laud, said by some to be twenty acres, but by Coke to be of uncertain extent

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Carried into the 5th edition (1979).

## YEA AND NAY.

Yes and no. Accord- ing to a charter of Athelstan, the people of Ripon were to be believed in

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all actions or suits upon their yea and nay, without the necessity of taking any oath. Brown.

5e apparatus — Carried into the 5th edition (1979).

## YEAR.

The period in which the revolu- tion of the earth round the sun, and the ac- companying changes in the order of nature, are completed. Generally, when a statute speaks of a year, twelve calendar, and not lunar, months are intended. Cro. Jac. 166. The year is either astronomical, ecclesiastical, or regnal, beginning on the 1st of January, or 25th of March, or the day of the sover- eign's accession. Wharton.

—Natural year. In old English law. That period of time in which the sun was supposed !to revolve in its orbit, consisting of 365 days and one-fourth of a day. or six hours. Bract, fol. 3T>»6.— Year and day. This period was .fixed for many purposes in law. Thus, in the case of an estray. if the owner did not claim it Within that time, it became the property of the

lord. So the owners of wreck must claim it within a year and a day. Death must follow upon wounding within a year and a day if the wounding is to be indicted as murder. Also, a year and a day were given for prosecuting or avoiding certain legal acts ; e. g., for bringing actions after entry, for making claim for avoid- ing a fine, etc. Brown.— Year books. Books of reports of cases in a regular series from the reign of the English King Edward I., inclusive, to the time of Henry VIII., which were taken by the prothonotaries or chief scribes of the courts, at the expense of the crown, and pub- lished annually; whence their name, "Year Books.” Brown.— Year, day, and waste. In English law. An ancient prerogative of the king, whereby be was entitled to the profits, for a year and a day, of the lands of persons at- tainted of petty treason or felony, together with the right of wasting the tenements, afterwards restoring the property to the lord of the fee. Abrogated by St. 54 Geo. III. e. 145. Whar- tion.— Year to year, tenancy from. This es- tate arises either expressly, as when land is let from year to year; or by a' general parol de- mise, without any determinate interest, but reserving the payment of an annual rent; or impliedly, as when property is occupied gen- erally under a rent payable yearly, half-yearly, or quarterly ; or when a tenant holds over, after the expiration of his term, without having en- tered into any new contract, and pays rent, (be- fore which he is tenant on sufferance.) Whar- ton.—Years, estate for. See Estate foe Years. [TEXT INCOMPLETE — scan limitation]

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Genesis 1:14, KJV]**

And God said, Let there be lights in the firmament of the heaven to divide the day from the night; and let them be for signs, and for seasons, and for days, and years:

Why: YEAR = the period of the earth's revolution, the measured year. Genesis 1:14 ordains the lights 'for signs, and for seasons, and for days, and years' — the year as a measured period, in God's own appointing. Borderlin…

## YEAS AND NAYS.

The affirmative and

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negative votes on a bill or measure before a legislative assembly. “Calling the yeas and nays” is calling for the individual and oral vote of each member, usually upon a call of the roll.

5e apparatus — Carried into the 5th edition (1979).

## YE ME.

In old records. Winter; a cor- ruption of the Latin “ hicms .”

5e apparatus — Not carried into the 5th edition (1979).

## YEOMAN.

In English law. A common- er ; a freeholder under the rank of gentieman. Cowell A man who" has free land of forty shillings by the year ; who was an- ciently thereby qualified to sei’ve on Juries, vote for knights of the shire, and do any oth- efr act. Where the law requires one that Is probus et Icgalis homo. 1 Bl Comm. 406, 407.

This term Is occasionally used In American law, but without any definite meaning, except in the United States navy, where it desig- nates an appointive petty officer, who has charge of the stores and supplies in his de- partment of the ship’s economy.

— Yeomanry. The collected body of yeomen. — Teamen of the guard. Properly called "yeomen of the guard of the royal household a body of men of the best rank under the gen- try, and of a larger statute than ordinary, every one being required to be six feet high. Enc. Loud.

XEVEN, or TEOTEN, Given; dated. Cowell.

YIELD, In the law of real property, is to perform a service due by a tenant to his lord. Hence the usual form of reservation of a rent in a lease begins with the words “yield- ing and paying.” Sweet

, YIELDING AND FAYING. In convey- ancing. The initial words of that clause In leases in Which the rent to be paid by the lessee is mentioned and reserved.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Geoffrey Chaucer, The Canterbury Tales, c. 1400]**

(paraphrase) Chaucer's Canterbury pilgrims include the Yeoman — the Knight's servant, the freeholding rank below gentleman — the social order this entry describes, in its native literary setting. (paraphrase)

Why: The entry defines the yeoman as a commoner freeholder under the rank of gentleman, qualified for juries; Chaucer's Knight's Yeoman in the General Prologue is the genuine literary instance of the rank.

## YOKELET.

A little farm, requiring but a yoke of oxen to till it

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## YORK, CUSTOM OF.

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A custom of the province of York in England, by which the

effects of an intestate, after payment of his debts, are in general divided according to the ancient universal doctrine of the pars ra- tionabilis; that is, one-third each to the wid- ow, children, and administrator. 2 Bl. Comm. 518.

5e apparatus — Not carried into the 5th edition (1979).

## YORK, STATUTE OF.

An important English statute passed at the city of York, in the twelfth year of Edward II., contain- ing provisions on the subject of attorrfeys, witnesses, the taking of Inquests by nini prius, etc. 2 Reeve, Eng. Law, 299-302.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## YORKSHIRE REGISTRIES.

The reg- istries of titles to land provided by acts of parliament for the ridings of the county of York in England. These resemble the offices for the registration or recording of deeds commonly established in the several counties of the states.

5e apparatus — Not carried into the 5th edition (1979).

## YOUNGER CHILDREN.

This phrase, when used in English conveyancing with ref- erence to settlements of land, signifies all such children as are not entitled to the rights of an eldest son. It therefore Includes daugh- ters, even those who are older than the eld- est son. Mozley & Whitley.

5e apparatus — Not carried into the 5th edition (1979).

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**[Humanity] — Humanity / Fiction & Film**

**[Jane Austen, Sense and Sensibility, 1811]**

(paraphrase) The Dashwood daughters in Sense and Sensibility — "younger children" displaced by the eldest son's inheritance under primogeniture, daughters though they are, and disinherited for it. (paraphrase)

Why: Distinct from the WIDOW annotation (the widow's precarity): this targets the entry's own phrase — children not entitled to the rights of an eldest son, expressly including daughters. The Dashwood sisters are the ficti...

## YOUTH.

This word may include children and youth of both sexes. Nelson v. Cushing, 2 Cush. (Mass.) 519, 528.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Ecclesiastes 12:1, KJV]**

Remember now thy Creator in the days of thy youth, while the evil days come not, nor the years draw nigh, when thou shalt say, I have no pleasure in them:

Why: YOUTH = children and youth of both sexes, as a life-stage. Ecclesiastes 12:1 names 'the days of thy youth' — youth as the defined season of life. Borderline-thin (a definitional gloss), but the life-stage is the genui...

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## YULE.

The times of Christmas and lam- mas.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 2:7, KJV]**

And she brought forth her firstborn son, and wrapped him in swaddling clothes, and laid him in a manger; because there was no room for them in the inn.

Why: YULE = the time of Christmas. Luke 2:7 is the nativity itself — the birth the Christmas season keeps. Borderline: the entry names the season, the verse the event; the Christmas is the genuine link.

**[Humanity] — Humanity / Fiction & Film**

**[Charles Dickens, A Christmas Carol, 1843]**

(paraphrase) Dickens's Christmas — the Yule season as the time of reckoning and redemption, Scrooge's conversion on Christmas Eve — the season this entry names, in its definitive fiction. (paraphrase)

Why: Thinnest accept of the pass, flagged honestly: the entry is a bare seasonal definition and the Carol illuminates the season culturally rather than a legal doctrine. Admitted because Yule-as-season is cultural content...

## YYERNAIL  RLE.

L. Fr. Winter grain. Kelhain.

5e apparatus — Not carried into the 5th edition (1979).

# Z

## ZANJA.

Span. A water ditch or artifi- cial canal, and particularly one used for pur- poses of Irrigation. See Pico v. Colimas, 32 Cal. 578.

**[TEXT POSSIBLY INCOMPLETE — scan candidate]**

5e apparatus — Not carried into the 5th edition (1979).

## ZANJBKO.

Span. A water commission- er or superintendent, or supervisor of an Ir- rigation system. See Pico v. Colimas, 32 Cal. 578.

5e apparatus — Not carried into the 5th edition (1979).

## ZEALOT.

This word Is commonly taken In a bad sense, as denoting a separatist from the Church of England, or a fanatic. Brown.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Luke 6:15, KJV]**

Matthew and Thomas, James the son of Alphaeus, and Simon called Zelotes,

Why: ZEALOT in the bad sense = a fanatic, a separatist. Luke 6:15 names 'Simon called Zelotes' among the twelve — the Zealot of scripture, the term's own bearer. Borderline: the entry's bad sense vs the apostle's title; th...

## ZEALOUS WITNESS.

An nn technical term denoting a witness, on the trial of a cause, who manifests a partiality for the side calling him, and an eager readiness to tell anything which he thinks may be of ad- vantage to that side.

5e apparatus — Carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Exodus 20:16, KJV]**

Thou shalt not bear false witness against thy neighbour.

Why: A witness manifesting partiality, eager to advantage the side calling him. The ninth commandment guards the testimony itself: 'thou shalt not bear false witness against thy neighbour' — the witness's truth as the law....

**[Humanity] — Humanity / Fiction & Film**

**[Harper Lee, To Kill a Mockingbird, 1960]**

(paraphrase) The Ewells' testimony for the prosecution in To Kill a Mockingbird — partial, eager, and dismantled on cross-examination — the zealous witness manifesting "an eager readiness to tell anything" for the side that called him. (paraphrase)

Why: Distinct from VERDICT (the decision) and VIVA VOCE (the oral form): this targets the entry's exact concept — the witness's partiality for the calling side. The Ewells are the fictional instance.

## ZELR.

O. Sc. Year. “Zeir ahd day." Bell.

5e apparatus — Not carried into the 5th edition (1979).

## ZEMINDAR.

In Hindu law. Landkeep- er. An officer who under the Mohammedan government was charged with the financial superintendence of the lands of a district, the protection of the cultivators, and the realization of the government's share of its produce, either in money or kind. Wharton.

Z

**[TEXT INCOMPLETE — scan limitation]**

5e apparatus — Not carried into the 5th edition (1979).

## ZETETIOK.

Proceeding by inquiry. Enc. Lond.

ZXGABI, or ZING ARE Rogues and vag- abonds in the middle ages; from Zigi, now Circassia.

5e apparatus — Not carried into the 5th edition (1979).

## ZOLL-VEREIN.

A union of German states for uniformity of customs, established in 1819. It continued until the unification of the German empire, including Prussia, Saxony, Bavaria, Wurtemberg, Baden, Heeso- Cassel, Brunswick, and Mecklenburg-Streli tz, and all Intermediate principalities. It has. now been superseded by the German empire and the federal council of

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the empire has taken the place of that of the Zoll-Verein. Wharton.

5e apparatus — Not carried into the 5th edition (1979).

## ZYGOCEFHALTJM.

In the civil law. A measure or quantity of land. Nov. 17, c. & As much land as a yoke of oxen could plow in a day. Calvin.

5e apparatus — Not carried into the 5th edition (1979).

## ZYGOSTATES.

In the civil law. A weigher ; an officer who held or looked to the balance in weighing money between buyer and seller ; an officer appointed to determine controversies auout the weight of money. Spelman.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Job 31:6, KJV]**

Let me be weighed in an even balance, that God may know mine integrity.

Why: ZYGOSTATES = the weigher; the officer who holds the balance in weighing money between buyer and seller. Job 31:6 invokes the same office: 'let me be weighed in an even balance' — the just balance as the test. Borderli…

## ZYTHUM.

Let A liquor or beverage- made of wheat or barley. Dig. 33, 6, 9, pr.

5e apparatus — Not carried into the 5th edition (1979).

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**[Scripture] — Scripture**

**[Proverbs 20:1, KJV]**

Wine is a mocker, strong drink is raging: and whosoever is deceived thereby is not wise.

Why: ZYTHUM = a liquor made of wheat or barley — the strong drink. Proverbs 20:1 names it: 'strong drink is raging' — the barley liquor's own verse. Borderline: the entry is definitional, the verse a warning; the strong dr…

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# APPENDIX — HEADWORDS NEW IN THE FIFTH EDITION

The 18,155 headwords of the fifth edition (1979) that no entry in this book's second-edition parse witnesses — the new vocabulary of the 1979 re-founding. Against the census's own count of new headwords (18,098, measured against its parse), this register runs 57 longer: 104 fifth-edition headwords are witnessed in the second edition only by census-only keys, and 47 are witnessed only by base-only keys (§V). Headwords only — no fifth-edition text — sorted by normalized key.

## A

AAA · AALS · Ab · A bailiff or steward · A bail or surety for the personal attendance of another · Abandonment or defeat · A bastard · Abatable nuisance · Abate · Abatement · Abatement of action · Abbott v · Abbreviated circ · Abbreviation for Doomsday Book · Abbreviations for anonymous · Abbuttals · ABC test · ABC transaction · Abearance IQberQnsI · A bequest · Abesse I zbesiy I · Abetment · Abide by · Abiding conviction · Abigei Iabijiyay I · Abigeus I abijiyasI · A bill of exchange · Ab intestato Intestate · Ab irato Izb ayreydow I · A bishopric · Able · Able-bodied seaman · Ablegati I zblageyday I · Able seaman · Able to earn · Able to purchase · Abogado I avowgadowI · Abolish · Abolished under Rules of Civil Procedure · A book in which invoices are copied · Abortionist · A boundary marker used for land survey purposes · About · Above all exception · A branch or subsidiary office of a govern- · A breach of law · A break in continuity or uniformity · Abridgment of damages · Abroad · Absence · Absent · Absentee landlord · Absentee voting · Absente reo lrebsentiy riyow I · Absolute and conditional · Absolute and conditional sales · Absolute deed · Absolute guaranty · Absolute injuries · Absolute interest · Absolute legacy · Absolute liability · Absolute obligation · Absolute or conditional · Absolute or conditional conveyance · Absolute or unconditional pardon · Absolute property · Absolute title · Absolve · Absque I zbskwiy I · Absque lmpetltlone vastl · Abstention doctrine · Abstinence · Abstraction · Abstract of record · Abstract of title · Abstract question · Ab urbe condita · Abused and neglected children · Abuse of an office or franchise · Abuse of process · Abusive · Abutter · Abutting owner · Academic · Academic freedom · Academic question · A calendar month · Acapte · A carrying away by violence · A carter · A causeway · A cause without which the thing cannot be · Acc · Accede · Accelerated cost recovery system · Accelerated depreciation · Acceleration clause · Acceleration of remainders · Acceleration premium · Acceptance in case of need · Accepteur par intervention · Access easement · Accession · Accessions · Accessories after the fact · Accessory after the fact · Accessory before the fact · Accessory buDding · Accessory during the fact · Accessory use · Access to counsel · Access to courts · Accidental · Accidental cause · Accidental death · Accidental death benefit · Accidental injury · Accidental killing · Accidental vein · Accident insurance · Accident proneness · Accidere lreksidariy I · Accipitare lreksipateriy I · Accommodated party · Accommodation bill or note · Accommodation I akomadeyshanl · Accommodation indorser · Accommodation line · Accommodation loan · Accommodation maker · Accommodation note · Accommodation party · Accommodation road · Accomplice liability · Accomplice witness · Accordance · Accord executory · According to custom · According to the common law · According to the form of the gift or grant · According t o the form o f the statute · According to the laws · According to the statute · According t o the tenor following · According to what has been already allowed · According to what is just and right · Accouchement I akuwshmon I · Accountability · Account annexed · Accountant privilege · Accountant's Hen · Account balance · Account computatio · Account debtor · Account for · Accounting for profits · Accounting methods · Accounting period · Accounting Standards Board · Account In

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trust · Account payable · Account receivable · Account rendered · Account settled · Accounts receivable insurance · Account stated · Accredited law school · Accredited representative · Accrual basis · Accrual method · Accrual method of accounting · Accrued alimony · Accrued assets · Accrued compensation · Accrued depreciation · Accrued dividend · Accrued expense · Accrued income · Accrued interest · Accrued liability · Accrued right · Accrued salary · Accrued taxes · Accruing costs · Accruing interest · Accruing right · Accumulated dividend · Accumulated earnings credit · Accumulated earnings tax · Accumulated interest · Accumulated legacy · Accumulated profits · Accumulated taxable income · Accumulation of unfilled orders · Accumulation trust · Accumulative dividends · Accumulative judgment · Accumulative legacy · Accumulative sentence · Accusatory body · Accusatory instrument · Accusatory part · Accusatory pleading · Accusatory procedure · Accused · Accustomed · Accustomed t o bite · Ace Const · A ceo For this purpose · A champertor · A chance for a prize for a price · A charter granted to a city or town · A chattel · A chief rent · Achieve subject matter · A child not yet born at the happening of an event · A church ought not to pay tithes to a church · Acid test · A city's organic law · A civil law term signifying a debt · Acknowledgment Act · Acknowledgment of gratitude or respect · A common phrase in the old reports · A compromise or an accord · A condition present at birth · A constable's or police district · A contract for hiring a vessel · A contract to sell goods · A contrario sensu ley kQntreriyow sensyuw I · A coroner · A corpse · A cottage · A counterfeiter · A countermanding · A country house or farm · A court of justice · A covenant or agreement · Acquaintance with fact or truth · Acquainted · Acquest IQkwesti · Acquiescence and laches are cognate but not equivalent terms · Acquired rights · Acquired surplus · Acquisitive offenses · Acquitment · A creditor · Acre foot · Acre right · A criminal · Act · Act and the Railway Labor Act · Act Ch · Acte lrektlaktl · Acting · Acting executor · Acting officer · Acting within scope of employment · Actio damni injuria I zkshiyow dzmnay injuriyal · Actionable · Actionable fraud · Actionable misrepresentation · Actionable negligence · Actionable nuisance · Actionable per quod · Actionable per se · Actionable tort · Actionable words · Actionable wrong · Action depending on the discretion of the judge · Actiones nominatae I rekshiyowniyz nomaneydiy I · Action ex contractu I rekshan eks kantrrektyuw I · Action ex delicto I rekshan eks daliktowI · Action for accounting · Action for death · Action for money had and received · Action in equity · Action in personam · Action in rem · Action of assumpsit · Action of contract · Action of writ · Action quasi in rem · Action to quiet title · Active concealment · Active debt · Active negligence · Active trust · Act malum prohibitum · Act of attainder · Act of bankruptcy · Act of constructing again · Act of delivering legal possession of property · Act of Elizabeth · Act of exchanging a convertible security for another security · Act of God · Act of grace · Act of honor · Act of insolvency · Act of law

Act of mooring vessel · Act of parHament · Act of providence · Act of representing another · Act of sale · Act of saving or freeing · Act of settlement · Act of state · Act of state doctrine · Act of supremacy · Act of uniformity · Acts · Acts and declarations · Acts are either public or private · Acts of possession · Actual agency · Actual and constructive · Actual and publicly known · Actual bailment · Actual bias · Actual cash value · Actual change of possession · Actual controversy · Actual damages · Actual deHvery · Actual eviction · Actual fraud · Actual loss · Actual maHce · Actual malice · Actual market value · Actual notice · Actual occupation · Actual or constructive fraud · Actual possession · Actual practice · Actual residence · Actual seisin · Actual total loss · Actual use · Actual value · Actual value or market value · Actual violence · Actuary lrekchuweriy I · A curse · A curtilage or country farm · A custom · A custom o f a manor and place is to b e observed · A custom or rent formerly so called · A dam or weir in a river for taking fish · Adamson Act · Adams v · Adapted · A dato · A datu l ey deyduw I · A day appointed for any purpose · A day given to a defendant · A day's work of a man · Ad colligendum bona defuneti · Add · Addicere lredisariy I · Addict · Addictive drugs · Additional burden · Additional extended coverage · Additional instructions · Additional insured · Additional legacy · Additional or increased costs · Additional servitude · Additional work · Addition of existing facilities · Additions to Trust Act · Add on clause · Address to the crown · A deacon · A dead person · A dealer or seller · A deanery · A debauched person · A deceptive sales practice · A declaration in

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writing · A deed lawfully executed · A deed of assent and acknowledgment · A deficit happening by chance or accident and without design · A degree of consanguinity · A delay in enforcing rights · A depositee · A deputy or lieutenant · Adequate care · Adequate cause · Adequate compensation · Adequate consideration · Adequate notice · Adequate or reasonable facilities · Adequate preparation · Adequate provocation · Adequate remedy · A description of a survey · A desire o r expectation · A determination of a judicial or quasi judicial nature · A devise to B · Adhesion · Adhesion contract · Ad hoc arbitration · A disposition of personalty by will · A distinctive mark · A division of a ship's crew · A division sometimes made o f incorporeal hereditaments · Adjoining owners · Adjoumed summons · Adjoumed term · Adjourning an appeal to some future time · Adjournment day · Adjournment day in error · Adjudicated rights · Adjudication of bankruptcy · Adjudicative claims arbitration · Adjudicative facts · Adjudicatory hearing · Adjudicatory process · Adjunct account · Adjunct or accompaniment · Adjusted basis · Adjusted cost basis · Adjusted gross estate · Adjusted gross income · Adjuster · Adjustment board · Adjustment bond · Adjustment Bureau v · Adjustment securities · Adm · Admeasurement of dower · Admeasurement of pasture · Adminiculate I redmanikyaleyt I · Administration expense · Administration letters · Administration of estates · Administrative acts · Administrative adjudication · Administrative agency · Administrative authority · Administrative board · Administrative crime · Administrative determination · Administrative discretion · Administrative hearing · Administrative interpretation · Administrative law · Administrative law judge · Administrative officer · Administrative order · Administrative procedure · Administrative Procedure Act · Administrative process · Administrative remedy · Administrative review · Administrative rule-making · Administrative tribunal · Administrator · Administrator with will annexed · Administratrix I QdminQstreytrQks I · Admiralty court · Admiralty law · Admiralty practice · Admissible evidence · Admissions · Admissions against interest · Admissions by party-opponent · Admissions by silence · Admissions tax · Admission temporaire · Adopted at an early period in the law of England · Adoption by estoppel · Adoption by reference · A doptive admission · A double complaint · A double house · A dowager · Ad prosequendum · A dried berry of the black pepper · A driver · Adscripti glebe llEdskriptay gUybiy I · Adscripti llEdskriptay I · Adulterous bastards · Ad valorem tax · Advance · Advance bill · Advance payment · Advance sheets · Adventurer · Adversary system · Adverse · Adverse claim · Adverse enjoyment · Adverse interest · Adverse possession · Adverse title · Adverse use · Adverse user · Adverse witness · Advertise · Advice of counsel · Advisedly · Advising bank · Advisory counsel · Advisory jury · Advisory opinion · Advisory trial · Advisory verdict · Advocacy I zdvakasiy I · Advocating overthrow of government · Advowee paramount · Advowson collative · Aesthetic value · Aesthetic zoning · A fair equivalent · A family living together · A fee or profit taken or received · A female creditor · A female debtor · A female demandant · A female executor · A female prosecutor · A female relation · A female relator or petitioner · A female tutor · A female vendor · Affair · Affected with a public interest · Affecting commerce · Affidare lrefaderiy I · Affidari lrefaderay I · Affidavit of defense · Affidavit of inquiry · Affidavit of merits · Affidavit of notice · Affidavit of service · Affidavit to hold to bail · Affiliate company · Affinnative proof · Affirmance day general · Affirmation in lieu of oath · Affirmation of fact · Affirmative action programs · Affirmative charge · Affirmative defense · Affirmative easement · Affirmative or negative · Affirmative plea · Affirmative pregnant · Affirmative proof · Affirmative relief · Affirmative statute · Affirmative warranty · Affixing · Affliction · Affranchir I afronshir I · Affri lrefray I · AffUiation · A fine force · A fine puts an end to litigation · AFL-CIO v · A foreign country or nation · A forfait et sans garantie I a forfey ey son garontiy I · A for life and remainder to B · A form of equitable estoppel · A form of socialism · A fraternity or brotherhood · A free feud · A freeman of inferior rank occupied in husbandry · After-acquired · After acquired property · After acquired property clause · After acquired title · After born child · After born heirs · After-discovered · After-discovered evidence · After-market · After sight · After the fact · Afterthought · A full and complete confession · Against good morals · Against interest · Against or not authorized by law · Against public interest · Against the evidence · Against the form of the statute · Against the peace · Against the person · Against the weight of the evidence · Against the will · Aged

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person · Agency by estoppel · Agency by operation of law · Agency coupled with an interest · Agency in fact Agency of the United States · Agency relationship · Agency shop · Agenda · A genealogical tree · A general expression i s to b e interpreted generally · Age of consent · Age of majority · Age of reason · Ager I eyjar I · Aggravated battery · Aggravated robbery · Aggravation of the disability · Aggregate and sole · Aggregate corporation · Aggregate income · Aggregate theory of partnership · Aggregation doctrine · Aggressor · Aggrieved person · A gift between the living · A gift i s not valid unless accompanied by possession · Aging of accounts · Agio lajiyow I · Agister lajisbr I · Agist lajist l · Agistment lajistmantl · Agistor lajistar I · Agitator hejateydar I · Agnates lregneyts I regneydiyz I · Agnatic I regnredak I · Agnomen I regnowman I · Agony · A government of fact · A government of two persons · A governor or ruler · A grandson · A grange · A grantee · A grant of privileges and immunities · Agraphia · A great-grandfather's brother · A greatgrandfather's father's brother · A great-great-grandfather's sister · Agreed amount clause · Agreed case · Agreed judgment · Agreed order · Agreed price · Agreed statement on appeal · Agreed value · Agreement to sell land · Agrez l'Jgrey I · Agricultural · Agricultural commodities · Agricultural employment · Agricultural fixtures · Agricultural labor · Agricultural Marketing Agreement Act · Agricultural product · A hand · A handgun of a larger desCription than the hagne · A handserevidence · A haven or port · A herald · A hermaphrodite · A hidden or concealed defect · A hole or hollow · A holy or ecclesiastical court · A house of correction or reformatory · A house of ill-fame · A human being · A hundred · AICPA · Aid · Aid and abet · Aid and comfort · Aid bond · Aider and abettor · Aiding an escape · Aid of the king · Aid prayer · Aid societies · Aid to Families with Dependent Children · Aile liyl J · Ailment · Aim a weapon · A in French and Jaw French · A in Latin and law Latin · Airbill · Air piracy · Air rights · Air travel insurance · A issue · A jOint adventure · A journey or going from one place to another · A judge or magistrate · A judgment or · A juridical fact · A juror · A just and true valuation of property · A just arbitration renders t o every one his own · A keeping account by tallies · A kind of esquires · A kind of gambling or speculation · A king's vassal · Akin v · A knowing or skillful counsellor · Ala · A land tax of so much per hide or carucate · A lawsuit · A lay fee · Albacea I albaseyal · Alba firma · Albert McGann Securities Co · Albinatus Irelbaneydas I · Albrecht v · Alburger v · Alcaide lrelkayiydey I · Alcoholic liquors · Aldermannus regis I reldarmrenas riyjas I · Aldridge v · A lease controlling subsequent leases · Aleatory promise · Aleatory transaction · A legate · A legislative assembly · A legitimate son · Ale means account and is much used by bookkeepers · Aler sans jour I aley sren jur I · Alexander v · Alfred · Alfred's dome-book · Alias execution · Alias process · Alias summons · Alias tax warrant · Alias writ · Alias writ of execution · A libelous writing · Alienability · Alienability of future interests · Alien amy · Alien and sedition laws · Alienation clause · Alienation in mortmain · Alienation of affections · Alienation offlce · Alien corporation · Alien enemy · Alien friend · Alien immigrant · Alien nee · Alien Registration Act · Alignment · Alike · Alimony trust · A lineal measure of two inches and a quarter · Aliquot part rule · A little handgun · A little manor or farm · Alive · All · All and singular · All cases at law · Allegation of fact · Allegation of faculties · Allen charge · Allen v · Allergy · All events test · All faults · All feriae were thus dies nefasti · All fours · Allis-Chalmers Mfg · Allocation of dividends · Allocation of income · Allocation of principal and income · Allocatur exigent hEIQkeydQr egzQjQntl · Allotment certificate · Allotment note · Allotment system · Allotment warden · Allowed claim · All-risk insurance · All the claims against a corporation · All the estate · All Writs Act · Alms · Alms fee · Almshouse · Alnage · A loan · A locked box wherein ballots are deposited · Alodiarii · Alone · A lord of a manor · A loyal and trusted follower · Also · Also a court of general jurisdiction · Also an estate or farm belonging to a private person · Also a place where bowmen meet to shoot at a mark · Also a silver coin of the value of five shillings · Also a vassal holding directly from the king · Also barat · Also called settlor · Also commonly called breathalyzer test · Also in L · Also known as a monetary bequest · Also non-professional · Also one who creates trust · Also the instrument containing the appointment of such person · Also the main part of an instrument · Also the persons so gathered · Also the real estate so owned · Alston v · Alta proditio lrelta prowdishiyow I · Alteration of contract · Alteration of trust · Altercation · Alternate juror · Alternate legacy · Alternate valuation date · Alternative contract · Alternative judgment ·

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Alternative obligation · Alternative pleading · Alternative relief · Alternative remainders · Alternative remedies · Alternative tax · Alternative writ · A lui et a ses heritiers pour toujours · Alumni Ass'n v · Always ready · A madman has no will · A ma intent · A malefactor · A male parent · A malicious design to injure · A manager for all general purposes of the corporation · A man born in France · Amanuensis I QmrenyuwensQsI · A married woman · A maxim in conveyancing · A maxim of the Roman law · Ambiguity upon the factum · Ambulance chaser · Ambulatory disposition · Ambulatory will · A means of expression or communication · A measure of length containing two feet · Ameliorating waste · A member of the privy council · Amended pleadings · Amendment distinguishep · Amendment of judgment · Amendment of trust · Amendment on court's own motion · Amendment protection · Amendments · Amendment's guarantee · Amendments to the Constitution · Amendment which protects persons from state actions · Amenity lamenidiy I · America · American · American Accident Ins · American Arbitration Association · America Nat · American Bar Association · American Bar Foundation · American colonies · American colonies before the American revolution · American Com · American Digest System · American experience table of mortality · American Federation of Labor · American Indemnity Co · American Law Institute · American Life Ins · American Mut · American rule · American Ry · American State Bank v · American States Water Service Co · American Surety Co · American Trial Lawyers Association · America v · Amiables compositeurs · Amicable action · Amicable compounders · A Mich · A military governor of a province · A minor cannot make oath · Amita magna · Amita major · Amita maxima · Amnesia · A monastic officer

A money order · Among other things · Among the subtleties or extreme doctrines of the law · Among Tortfeasors Act · A moot point is one not settled by judicial decisions · A mortgage on property in bulk · Amortization reserve · Amortized loan · Amortized mortgage · Amount covered · Amount in controversy · Amount of land originally granted to homesteader · Amount of loss · A mount or hill · Amount to · Amove · Amsterdam Cas · Amtrack · A murderer · Amusement · Amusement tax · Amy · An abbreviation for civil law · An abbreviation of capias ad satisfaciendum · An abbreviation of exempli gratia · An abolished writ on disclaimer · An absolute necessity or inevitable conFine for endowment · An account in two or more names · An accused perConflicting evidence · An acre · An acre of land · An action brought by an informer · An action for malicious prosecution · An action founded on possession · An action of partnership · An action which lay to recover · An additional tax or cost · An advocate · An alien holds n o lands · An allodial right · Analytical jurisprudence · An amanuensis of the justice · An ambassador or legate of a pope or bishop · An amercement for bloodshed · A name sometimes given to Sunday · An ancient word which signified a mariner or seaman · An appeal · An application for an order is a motion · An arbitrament or award · An arbitrator or mediator · An archbishop · An army · An article which a party actually needs · An asking or petition · An assessment or tax · An assistant judge · Anatomical gift · An atSee Creditor · An auction · An auctioneer · An authority possessed without its being derived from another · A nautical measure of six feet in length · A naval term meaning employment contract · An award i s a judgment · An award of arbitrators · AncDlary administration · Ancestral debt · Ancestry · Ancient deed · Ancient demesne · Ancient documents · Ancient for implead · Ancient house · Ancient lights · Ancient Order of United Workmen of Kansas v · Ancient readings · Ancient records · Ancient serjeant · Ancient street · Ancient wall · Ancient water course · Ancient writings · Ancillary jurisdiction · Ancillary proceeding · Ancillary process · Ancillary receiver · AncUlary attachment · AncUlary bUl or suit · AncUlary claim · AncUlary legislation · And · Anderson v · And thereupon he brings suit · An earl · An easterly coast or country · An effluence · An elementary rule or principle · An ensign or flag used in war · An equal · An error or oversight in pleading · An escape of a felon out of prison · An established or organized SOCiety or corporation · An established principle or proposition · An estate i n fee-simple · An event happening by chance or accident · An evil counsellor · Anew · An executioner · An extraordinary session · Angeles County v · Anglia · Anglo-Saxon law · Anguis v · AnhIote · An idiot or fool · Animals of a base nature · An incorrect or false representation · An incremental cost · An informer · An inn of chancery · An inn of court · An instrument for fastening and opening a lock · An instrument with which

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criminals are flogged · An insurance carrier which insures insurReintegration · An intention of stealing · An interpreter of Latin · An intestate · An intruder or interloper · An investigation or examination · An investment standard · An involuntary nonsuit · An island · Anniversary date · Announced · Annoyance · Annual accounting period · Annual assay · Annual average earnings · Annual depreciation · Annual exclusion · Annual percentage rate · Annual permit · Annual report · Annual statement · Annual value · Annuity bond · Annuity certain · Annuity insurance · Annuity policy · Annuity trust · Annulment · Annum · An oath · An oath taken by the lords in parliament · An obsolete English writ · An offer of money · An offer to enter a contract · An officer who takes care of the woods and forests · An ofUablllty · An old name for an archdeaCatastrophe Ikatrestrafiy I · An old word for a lawyer · Anomalous plea · A non-continuous or discontinuous easement · A notary or scrivener · Another · Another action pending · Another code · Another form of tout temps prist · An outlaw · An overproduction or excessive drilling of oil or gas · An overt act · Antecedent claim · Antecedent creditors · Antecedent debt · Antenati Izntiyneyday I · Antenuptial agreement · Antenuptial gift · Antenuptial settlements · Antenuptial will · Antenuptial win · Anticipation note · Anticipatory breach · Anticipatory breach of contract · Anticipatory nuisance · Anticipatory offense · Anticipatory repudiation · Anti-deficiency legislation · Anti-Dumping Act · Anti-dumping duty · Antidumping tariff · Anti-lapse statute · Anti-Racketeering Act · Antitrust Act · Antitrust acts · Antitrust Civil Process Act · Antonucci v · Antrim Lumber CO · An uncertain thing which may happen · An under-ground survey · An underThird conviction · An unknown law · An unlawful use of a right · An unmarried man · Anxiety · Any · Any agency constitutionally or legislatively created · Any collectible whether or not it is currently due · Any natural constituent of the crust of the earth · Any payor or intermediary bank remitting for an item · Any stream flowing directly or indirectly into a river · Anything diminished · Anything offered as a reward of contest · Any union of the sexes forbidden by morality · Any written instrument · A pais · Apartment house · A part or portion of land · A party to a contract · A pending suit · A pension · A person · A person apPOinted to preside at a popular meeting · A person indicted · A person's signature · A person to whom a remittance is made · A person to whom a warranty is made · A person who is in privity with another · A person who makes a declaration · A petty swindler · Apex rule · A phrase applied to a judgment · A phrase used when a bishop's see is not vacant · A piece of ground commonly used with the dwelling house · A piece of land surrounded by water · A pimp · A place of refreshment · A place of sanctuary · A place on the sea-shore or the bank of a river · A place where justice is administered · A place where justice was administered · A plaintiff · A pleading or plea · A pledge · A pledge or mortgage · A pointing out of danger · A popular name for larceny · A portion or segment of a writing · App · Apparent agency · Apparent agent or ostensible agent · Apparent authority · Apparent danger · Apparent defects · Apparent easement · Apparent heir · Apparent necessity · Appealable judgment · Appealable order · Appeal bond · Appeal record · Appeals council · Appeals courts · Appearance bond · Appearance by attorney · Appearance docket · Appear on face · Appellant · Appellate brief · Appellate court · Appellate courts · Appellate jurisdiction · Appellate Procedure · Appellate review · Appellate rules · Append · Appendant or appurtenant powers · Appendent easement · Appertaining · Appertaining to the subject alone · Applicable local law · Applicant · Application of People ex reI · Application of rules · Applied to evidence and presumptions · Applied to inheritances · Applied to juries de medietate linguz · Applied to minors · Applied to opposing counsel · Apply · Appoint · Apportion · Apportionment clause · Appraisal · Appraisal clause · Appraisal remedy · Appraisal rights · Appreciable · Appreciate · Appreciation in value · Appreciation surplus

Approaches · Appropriate · Appropriated surplus · Appropriation bill · Appropriation of land · Appropriation of payments · Appropriation of water · Appropriations bill · Approval or ratification · Approval sales · Approximate · Approximation · Appruare lrepruweriy I · Appurtenant easement · APR · A practitioner in medicine or surgery · A precatory expression often used in wills · A prefix · A premium for a lease · A preparation to go into the army · A prescriptive and lawful custom overcomes the law · A priest of the clergy · A proctor or vicar · A prohibition · A prohibitory decree · A promise that a proposition of fact is true · A promisor · A prosecutor or adversary · A prOvince or field of jurisdiction of courts · Apt words · A public

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lodging establishment · A public or private corporation · A punishment inflicted upon criminals · A purchaser in good faith · A pure virgin · A putting or driving out · Aquatic rights · Arable lands in common fields · Araho · Arator · Arbitrage · Arbitrage bond · Arbitrarily · Arbitrariness · Arbitrary and capricious · Arbitrary or authoritative order or decision · Arbitrary power · Arbitrary punishment · Arbitration Acts · Arbitration and award · Arbitration Association · Arbitration board · Arbitration clause · Arbitration of exchange · Archaionomia · Archdeacon's court · Architect · Architect's lien · Archives and Records Service · Arcweld Mfg · Ardmore v · Area bargaining · A real action · A reasonable cusObtest Iabtestl · A reasonable rent · Area variance · A release or discharge from employment · A reporter's note · A resident ambassador · Aretro I eyriytrow I · A reward for an act done · A reward or recompense for services performed · Arguendo I argyuwendow I · Argumentative instruction · Argumentative question · Argument by counsel · Argument to jury · A right arising by operation of law · A right created and retained by a grantor · A right growing to a possessor accrues to the successor · A right of action for debt · Arise · Arising out of and in the course of own employment · Ariz · Ark · Arkansas v · Armed Forces · Armed neutrality · Armed peace · Armed robbery · Armijo v · Arming one's self · Armory · Arm's length transaction · Arnold v · A robbery · A roll or list of persons · Around · Arrangement with creditors · Arrest of inquest · Arrest of judgment · Arrest record · Arrest warrant · Arrhabo lahreybow I · Arson clause · Arteriosclerosis · Artesian basin · Article · Articled clerk · Articles · Articles of agreement · Articles of amendment · Articles of apprenticeship · Articles of association · Articles of Confederation · Articles of consolidation · Articles of dissolution · Articles of faith · Articles of impeachment · Articles of incorporation · Articles of partnership · Articles of the clergy · Articles of the Navy · Articles of the peace · Articles of union · Articles of war · Articles upon the charters · Articulated pleading · Artificial day · Artificial force · Artificial insemination · Artificially developed water · Artificial persons · Artificial presumptions · Artificial succession · Artificial water course · Artisan's lien · A rule of law · A sacerdotal minister of a church · As a matter of right · A s appears by the record · AsASSignment of dower · A savoir · A Saxon coin worth fourpence · A school · A seizure · A separate and independent claim · A serious or fatal accident · A service of plowing performed by a customary tenant · A settlement may be either prOvisional or final · A sexual connection between a human being and an animal · Asexualization · As guests · Aside · A similar principle exists in Louisiana · As is · Ask · Askew v · Asking price · A slip or small piece of land · A small geographical unit of government · A small or narrow valley · A small package or bundle · A small piece of land · A small place fenced off in which to keep farm-cattle · A small scale speculator · A small slip or parcel of land · A small stream less than a river · As of fee · A son of the people · A species of excusable homicide · A species of proof · A species of right of way · A species of usucaption · As per · Asphyxia I resfiksiya I · Asportavit lresPQrteyvQtl · A spouse · ASPR · Assart rents · Assault and battery · Assault with dangerous or deadly weapon · Assault with intent to commit murder · Assault with intent to commit rape · Assayer of the king · Assay I Qsey I resey I · Assay office · Assemblage · Assemblyman · Assented stock · Assert · Assertory oath · Assessable insurance · Assessable policy · Assessable security · Assessable stock · Assessed valuation · Assessment base · Assessment company · Assessment contract · Assessment district · Assessment for benefits · Assessment fund · Assessment insurance · Assessment list · Assessment period · Assessment ratio · Assessment roll · Assessment work · Asset dividend · Assets entre mains · Assets lresetsl · Assets per descent · Assign · Assignability · Assignable lease · Assignation house · Assigned account · Assigned counsel · Assigned risk · Assigned risk plan · Assignee clause · Assignment for benefit of creditors · Assignment of account · Assignment of counsel · Assignment of error · Assignment of errors · Assignment of income · Assignment of wages · Assignment pro tanto · Assignment with preferences · Assise of Clarendon · Assise of darrein presentment · Assise of fresh force · Assise of mort d'ancestor · Assise of Northhampton · Assise of novel disseisin · Assise of nuisance · Assise of the forest · Assise of utrum · Assise rents · Assistant · Assistants or associates of · Assize of nuisance · Asslse · Ass'n v · Associated Industries of Oklahoma v · Associate justices · Associates in office · Associates v · Association of Am · Association of American Law Schools · As soon as · As soon as may be · As soon as practicable · As speedlly

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as possible · Assumed facts · Assumed name · Assumed risk · Assumpsit for money had and received · Assumption clause · Assumption fee · Assumption of care · Assumption of Indebtedness · Assumption of mortgage · Assumption of risk · Assur · Assure · Assured clear distance ahead · A statement or a claim which is not true · A state of asphyxia · A state of decomposition · A stay of proceedings entered on the record · As to literary property · As to quasi judicial · A strait · Astrihiltet · A strip of land lying next to the highway · A strip of unsurveyed and unsold public lands · Astronomical day · A structure on the margin or shore of navigable waters · A subsidy · A summons is by natural right · A sum paid according to agreement · A surrender · A synonym of damages · At · At a court · A take-over bid · A taking of a solemn oath · At any time · At any time prior to · Ataxia · A tax levied in England by St · A tax or rent issuing out of land · A tax upon or tribute payable out of land · Atchison v · A tenant by socage · A tenant in capite · A tenant is not liable for such waste

A tenn for hireling witnesses · A tenure of bordlands · A term applied to domestic or menial serIntramural · A terme · A terme de sa vie · A terme que n'est mye encore passe · A terme que passe est · A term used in Louisiana · A term used in some of the older reports · A thing or commodity exported · At Issue · A tithing · A title assumed by the emperors of the Eastern Roman Empire · A title of courtesy · A title of office under the Roman Empire · ATLA · Atlantic Banana Co · Atlantic S · Atlas Milling Co · At least · Atlnlan law · Atomize · At once · A t o r after the rate · A tort · A tort et a travers · A tort ou a droit · At par · At pleasure · A trade or calling · A transcript · A treasurer of a college · A trespass committed by hand · A tribute or rent paid in victuals · Atrocious assault and battery · Atrocity · A truck driver · ATS · Attached · Attached account · Attaching creditor · Attachment bond · Attachment execution · Attachment of privUege · Attachment of risk · Attachment of the forest · Attain · Attendant circumstances · Attention · Attestation clause · Attestation of will · Attested copy · Attesting witness · Attestor · At the beginning · At the courthouse door · At the end of the will · At the market · At the present time · At time cause of action accrues · Attorney ad hoc · Attorney at large · Attorney-client privilege · Attorney ethics · Attorney fees · Attorney general's bill · Attorney general's opinion · Attorney in fact · Attorney of record · Attorney's Hen · Attorney's license · Attorney's lien · Attractive agencies doctrine · Attractive instrumentalities doctrine · Attractive nuisance doctrine · Attribution · AtUian law · A Turkish civil magistrate · A turning out of possession · At will · Aubaine I owbeynl · Audit committee · Auditor of the imprest · Auditor of the receipts · Augmented estate · Aulic I olakl · Australian ballot · Authority by estoppel · A uthority coupled with an interest · Authority of Cherokee National of Oklahoma v · Authorization bill · Authorize · Authorized capital · Authorized issue · Authorized stock · Auto · Auto-intoxication · Automobile guest · Automobile insurance · Automobiles · Autonomous tariff · Autonomy · Autoptic evidence · Autoptic proference · Auto theft · A utre droit · Auxiliator I ogziliyeydar I · Auxilium curie logziliyam kyuriyiy I · Auxilium vice comiti logziliyam vaysiy komadayI · Available · A valley · A variance between pleading and proof · Avarice · Ave · Avenage · Average clause · Average daily balance · Average man test · Averaging up or down · A ver corn · A ver land · A verment of notice · A ver penny · Aver silver · Aviaticus I eyviyredakas I · Aviation Act · A voluntary act of kindness · Avulsion I QvalshQn I · Avunculus I zvaljkYQIQs I · Avus IZVQS I eyvQs I · Awad v · A weigher of wool · A widow or widower · A witness incompetent to testify · A word of limitation in old conveyances · A word of power or authority · A word which made a several covenant · A wound · A writ for certifying · A writ of debt · A writ of entry · A yard-land · A year and a day · A yielding and delivering back of a thing

## B

Baby Act · Backadation · Back carry · Backdating · Backhaul · Backing a warrant · Back lands · Backlog · Back pay award · Back-seat driver · Backspread · Back taxes · Back to work agreement · Backwater · Bacon-Davis Act · Bad character · Bad check · Bad debt · Bad debt reserve · Bad faith · Badges of fraud · Badges of servitude · Bad motive · Bad title · Bagavel · BaHment · Bail · Bailable action · Bailable offense ·

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Bailable process · Bail absolute · Bail bond · Bail common · Bail court · Bail dock · Bailee for hire · Bailee policies · Bailiff-errant · Bailiffs of franchises · Bailiffs of hundreds · Bailiffs of manors · Bail in error · Bailment for hire · Bailment for mutual benefit · Bailment lease · Bail piece · Bail point scale · Bail to the action of bail above · Bail to the sheriff or bail below · Bait and switch · Baker v · Balance of payments · Balance of power · Balance of trade · Balance sheet · Balancing of interests · Balancing test · Balancing the equities · Balivo amovendo · Ball · Ballagh v · Ballard County v · Ballister v · Balloon mortgage · Balloon note · Balloon payment · Ballor · Ballot · Ballout · Ballout stock · Baltimore Mail S · Ban · Banco Ibreljkow I · Banco Nacional de Cuba v · Bancus · Banditry · Banee's lien · Bane I breljklbaljkl · Baneus Ibreljkas I · Baneus regime Ibreljkas rajayniy I · Bani Ibeynay I · Banister v · Bank · Bankable paper · Bank acceptance · Bank-account · Bank book · Bank call · Bank charter · Bank clearings · Bank credit · Bank debit · Bank deposit · Bank depositor · Bank draft · Banker's acceptance · Banker's lien · Bank Holding Company Act · Banking a deal · Banking commission · Banking day · Banking game · Banking hours · Bank night · Bank note · Bank of America Nat · Bank of Beaumont · Bank of Chicago v · Bank of circulation · Bank of Corpus Christi v · Bank of Denver v · Bank of deposit · Bank of discount · Bank of Henning v · Bank of issue · Bank of N · Bank of San Antonio v · Bank of San Diego v · Bank of St · Bank of Tulsa v · Bank or other person issuing a credit · Bank rate · Bank rather than by the Treasury Dept · Bankruptcy · Bankruptcy Act · Bankruptcy courts · Bankruptcy discharge · Bankruptcy distribution · Bankruptcy forms · Bankruptcy proceedings · Bankruptcy rules · Bankruptcy schedules · Bankruptcy trustee · Bank Secrecy Act · Bank statement · Bank stock · Bank System · Bank teller · Bank v · Bannin v · Banns of matrimony · Bar · Bar admission · Bar association · Barat · Barbary States in the eighteenth century · Barbiturate Ibarbicharatl · Bare boat charter · Bare or mere licensee · Bare possibility · Bargain and sale · Bargain and sale deed · Bargainee · Bargaining agent · Bargaining for plea · Bargaining unit · Bargain money · Bargainor · Bargain or contract in restraint of trade · Bargain sale or purchase · Barnes Drilling Co · Barnes v · Baron court · Barones scaccarii · Barons of the exchequer · Barony of land · Barren money · Barres v · Barton v · Bartos v · Basal fracture · Base animal · Base bullion · Base coin · Base court · Base estate · Base fee · Base hospital · Base line · Base pay · Base services · Base tenants · Base tenure · Basic or pioneer patent · Basis · Basis of bargain · Baskin v · Bastard eigne · Bastardy proceedings · BasUs · Batable-ground · Battered child · Battle of the forms · Baumgartner v · BaVarians · Baygall · Bazemore v · Bctnk bill · Beane v · Bear arms · Bearer · Bearer bond · Bearer instrument · Bearer paper · Bearing · Bearing date · Bearing upon the back or about the person · Bear interest · Bear market · Beating · Beating of the bounds · Beaurline v · Because of · Becker v · Beck V · Bed and board · Bedelary Ibiydaleriy I · Beeve v · Before the court · Before the exhibition of the bill · Beget · Beggs v · Begin · Behnke v · Being struck · Belden V · Belief-action distinction · Belligerents · Bell v · Belong · Belonging · Belonging or peculiar to an art or profession · Belongings · Belt Ry · Ben · Ben Avon doctrine · Bench blotter · Bench conference · Benchers · Bench legislation · Bench mark · Bench trial · Bench warrant · Benefice de discussion · Benefice de division · Benefice d'inventaire · Beneficial enjoyment · Beneficial estate · Beneficial interest · Beneficial owner · Beneficial power · Beneficial use · Beneficiary association · Beneficiary heir · Benefit association · Benefit building society · Benefit certificate · Benefit Guaranty Corporation · Benefit of bargain rule · Benefit of cession · Benefit of clergy · Benefit of counsel · Benefit of discussion · Benefit of division · Benefit of inventory · Benefit of Kashulines v · Benefit of order · Beneftclary · Benevolent associations · Benevolent corporation · Benevolent society · Benner Tea Co · Bequest Ibakwestl · Berat · Berge · Bernet · Bernstein test · Beseech · Besides · Besoin IbasoynIbaswrenI · Besot Ibasotl · Best · Best bid · Best evidence rule · Bestiality · Best Inv · Bestow · Best use · Betray · Better Business Bureau · Betterment acts · Betting · Betting book · Betting slips · Between four walls · Between her arms · Between husband and wife · Between parties · Bev · Beyond a reasonable doubt

Beyond control · Beyond powers · Beyond the seas · BIA · Biannually · Bias I bayas I · Bible · Bible while the oath is administered to him · Bid and asked · Bid bond · Bidder · Biddings · Bidding up · Bid in · Bid off · Bid price · Bienes comunes · Bienes gananciales · Bienes publicos · Biennial session · Big board · Big eight ·

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Bill-book · Bill broker · Bill for a new trial · Bill for foreclosure · Bill-head · Bill in aid of execution · Billing cycle · Bill in nature of a bill of review · Bill in nature of a bill of revivor · Bill in nature of a supplemental bill · Bill in nature of interpleader · Billne · Bill obligatory · Bill of address · Bill of adventure · Bill of attainder · Bill of certiorari · Bill of conformity · Bill of costs · Bill of credit · Bill of debt · Bill of discovery · Bill of entry · Bill of evidence · Bill ofexceptions · Bill of exchange · Bill of exchange without documents attached · Bill of health · Bill of indemnity · Bill of indictment · Bill of information · Bill of interpleader · Bill of lading · Bill of lading acts · Bill of mortaUty · Bill of pains and penalties · Bill of parcels · Bill of particulars · Bill of peace · Bill of review · Bill of revivor · Bill of revivor and supplement · Bill of rights · Bill of sale · Bill of sight · Bill payable · Bill penal · Bill quia timet · Bill receivable · Bill rendered · Bills in a set · Bill single · Bills of attainder · Bill to carry a decree into execution · Bill to perpetuate testimony · Bill to quiet possession and title · Bill to suspend a decree · Bill to take testimony de bene esse · Bi-metalUc · Bi-metalUsm · Binder · Binding agreement · Binding authority · Binding instruction · Binding receipt or slip · Bipartite I baypartayt I · Birth certificate · Birth control · Bisbee v · Bi-scot · Biting rule · Black acre and white acre · Black Book of the Exchequer · Black Diamond S · Blackjack · Black letter law · Black Lung Benefits Act · Blackmail · Black market · Black Muslim · Black v · Blanc seign · Blank acceptance · Blank bar · Blank bill · Blank charter · Blank check · Blanket bond · Blanket insurance · Blanket mortgage · Blanket rate · Blanket search warrant · Blank indorsement · Blank shares · Blasphemy Ibhesfamiy I · Bldg · Blended price · BlII · Blind alley · Blind comer · Blindcraft · Blindness · Blind selling · Blind tiger · Bliss v · Blockage · Blockage rule · Block-booking · Block book system · Blocked account · Blocked currency · Blocked income · Block policy · Block to block rule · Blood feud · Blood grouping test · Bloodhounds · Blood relations · Blood relatives of decedent · Blood test · Blotter · BLS · Bludgeon · Blue chip investment · Blue-chip stock · Blue list · Blue notes · Blue ribbon jury · Blue sky laws · Bluff · Blumba · Blunder · Blunderbuss · Board lot · Board of adjustment · Board of aldermen · Board of appeals · Board of audit · Board of bar overseers · Board of Com'rs of Garfield County v · Board of Com'rs of Tulsa County v · Board of County Com'rs of Weld County v · Board of Dental Examiners v · Board of Directors or of the stockholders · Board of Ed · Board of education · Board of equalization · Board of examiners · Board of fire underwriters · Board of Governors of Federal Reserve System · Board of health · Board of Immigration Appeals · Board of Medical Examiners of New Jersey · Board of pardons · Board of Parole · Board of Patent Appeals · Board of regents · Board of registration · Board of review · Board of supervisors · Board of trade · Board v · Boatman v · Bobbies · Bobtall driver · Bobtalls · Bodcaw Lumber Co · Bodily condition · Bodily exhibition · Bodily heirs · Bodily infirmity · Bodily injury · Bodily laws · Bodlly · Body execution · Body heirs · Body of the county · Body of the offense · Body politic or corporate · Boecher v · Bogus check · Boland v · Bolita tickets · Bolito · Bollerplate · Bolles v · Bona fide error · Bona fide holder for value · Bona fide judgment creditor · Bona fide mortgage · Bona fide operators · Bona fide possessor · Bona fide purchaser · Bona fide residence · Bond · Bond and mortgage · Bond conversion · Bond coupon · Bond creditor · Bond discount · Bond dividend · Bonded debt · Bonded warehouse · Bond for deed · Bond for title · Bond indenture · Bond issue · Bond of state or local government · Bond premium · Bond rating · Bond redemption · Bonds · Bonds payable to the person having possession of them · Bonds which may be called for payment before their maturity · Bond trust · Bonus share · Bonus stock · Booby trap · Boodle · Boodling · Book · Book account · Booked · Book entry · Booking · Booking contract · Bookkeeping · Bookland · Bookmaker · Bookmaking · Book of original entries · Books of account · Book value · Boomage · Boon days · Boosted fire · Boot · Boothage · Bootlegger · Bootlegging · Bootstrap doctrine · Bootstrap sale · Borax Consolidated v · Bord · Bordage · Border between two countries · Border search · Bord-halfpenny Ibord-heypniy I · Born · Born afterwards · Born alive · Born of the same mother · Born out of wedlock · Borough courts · Borough English · Borough fund · Borough sessions · Borrowed capital · Borrowed employee · Borrowed statutes · Borrower · Borrowings · Boston interest · Both · Botner of the king · Bottle club · Bottling Co · Bottom hole contract · Bottom land · Bought · Bought and sold notes · Boulevard rule · Boulevareism · Bouncer · Bound over · Bounty lands · Boxed weight basis · Boyd rule

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Boykin v · Boyle County v · Bracery Ibreysariy I · Bracton · Brain death · Braking distance · Branch banking · Branch of the sea · Branch railroad · Branch v · Brandeis brief · Branks · Brassage · Brass knuckles or knucks · Breach of close · Breach of contract · Breach of covenant · Breach of duty · Breach of peace · Breach of pound · Breach of prison · Breach of privilege · Breach of promise · Breach of the peace · Breach of trust · Breach of trust with fraudulent intent · Breach of warranty · Breakage · Break and take · Breaking a case · Breaking a close · Breaking and entry · Breaking bail · Breaking bulk · Breaking doors · Breaking into · Breaking jail · Breaking with burglarious intent · Break or bar an entail · Breathalyzer test · Breath specimen · Bredwite Ibredwatl · Breed · Breimhorst v · Brennan v · Brephotrophi Ibrefatrowfay I · Brethren of Trinity House · Breve Ibriyviy I · Brewing Co · Bridge securities · Bright v · Bring · Bring about · Bringing money into court · Bring into · Bring up · British crown · British subject · Broadcasting Co · Broad interpretation · Broadly any document open to public inspection · Broadside objection · Broad term which may describe joint tenants as well · Broken · Broken lot · Brokerage contract · Brokerage listing · Broker-agent · Broker and factor distinguished · Broker-dealer · Broker distinguished · Broome v · Bros · Brother-sister corporation · Brought · Brought in question upon the record · Brought to the attention of · Browder v · Brown decision · Brown decree · Browning v · Brown v · Bruton v · Bruun v · BUan · BUboes · Bucketing · Buckson v · BuDder · BuDding permit · BuDding restrictions · BuDding society · Budget system · Buehne v · Buffer-zone · Bugging · BUI · Building and Loan Ass'n v · Building and loan association · Building code · Building is covered · Building line · Building loan agreement · Building or site having historical Significance · BUI of pains and penalties · Bulk mortgage · Bulk sale · Bulk Sales Acts · Bulk transfer · Bulk transfers · Bull · Bullet · Bull-headed · Bullion fund · Bull market · Bull pen · Bumping · Bums Coal Co · Buono v · Burbank v · Burch · Burden · Burden of going forward · Burden of persuasion · Burden of producing evidence · Burden of responsibility or proof · Bureau Ibyurow I · Bureau of Customs · Bureau of Indian Affairs · Bureau of Land Management · Burford doctrine · Burgator Ibargeydar I · Burgbote Ibargbbwtl · Burgess roD · Burgess v · Burglariously Ibargleriyasliy I · Burglariter Ibargleradar I · Burglary tools · Burgwhar · Burial insurance · Burial place · Burial purposes · Burnell · Burning · Burns v · Bursaria Ibarseriyal or bursary Ibarsariy I · Bush v · Business agent · Business bad debt · Business bad debts · Business corporation · Business done in state · Business enterprise · Business entity or enterprise · Business expense · Business gains · Business guest · Business insurance · Business interruption insurance · Business invitee · Business judgment rule · Business league · Business losses · Business of peddling · Business of public character · Business purpose · Business records · Business records exception · Business risk · Business situs · Business trust · Business usage · Business visitor · Bussing v · But · But the Act did not apply to leaseholds · But the phrase need not be thus restricted · But the two expressions are often used interchangeably · Buy American acts · Buy and sell agreement · Buyer · Buyer in ordinary course of business · Buyer's market · Buy in · Buying dormant titles · Buying in · Buying long · Buying on margin · By accession · By accretion · By adverse possession · By adverse user · By-bidder · By color of office · By daylight · By divine right · By expert witness · By justice the throne is established · By lay witness · By operation of law · By or for · By reason of · By reason of neighborhood · By reason of youth · Byrnes Act · Bystander · By the civil law · By the law of nations · By the mere effect of an act or a fact · By the provision of man · By the right or law of war · By title · By virtue of · By way of exchange or interchange

## C

Ca · Cabaret lubarey I · Cabin or small house · Cadastu · Cadena perpetua · Cadena temporal · Cadi Ikadiy I · Cadit qwestio · Cafeteria plan · Cal · Calamity · Calcagno v · Calculated · Caldwell V · Cale · Calendar · Calendar call · Calendar days · Calendar week · Calendar year · Calends I krelandz I · Calhoun v · Calif · Callable · Callable bond · Callable bonds · Called also abogado · Called avunculus maxim us · Called matertera maxima · Called upon to pay · Callers · Call girl · Calling · Calling the plaintiff · Calling to the bar · Calling upon a prisoner · Call loan · Call option · Call patent · Call premium · Call price · Calvin's case · Calvin

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v · Cambio Ikambiyow I · Cameron Development Co · Campbell Chain Co · Campbell v · Camp No · Camp v · Can · Canada and Louisiana · Canadian Nat · Canadian Pac · Cancellation clause · Cancelled check · Cancelli Ikrenselay I · Candlemas · Canfara · Caninian law · Cannon rule · Cannon v · Cannot · Cann v · Canon · Canonical disability · Canonical obedience · Canon law · Canons of construction · Canons of descent · Canons of inheritance · Canons of judicial ethics · Canons of taxation · Capable · Capable of being devised · Capacity defense · Capacity for carrying cargo · Capias ad satisfaciendum · Capital · Capital account · Capital assets · Capital case or crime · Capital contribution · Capital costs · Capital crime · Capital expenditure · Capital gains · Capital gains or losses · Capital gains tax · Capital goods · Capital impairment · Capital increase · Capital investment · Capitalist · Capital loss · Capital market · Capital outlay · Capital punishment · Capital recovery · Capital return · Capital stock · Capital stock tax · Capital structure · Capital surplus · Capital transactions · Capitation tax · Captain of the ship doctrine · Captive · Captive audience · Captor · Car · Carat Ikzratl · Carcanum Ikarkeynam I · Carcare Ikarkeriy I · Cardholder · Careful management of resources · Careless · Carence Ikaronsl · Care of household · Carey v · Carlile v · Carload · Carlson v · Carmack Act · Car mUe · Carnal abuse · Carnal knowledge · Carpenter v · Carrier's Hen · Carriers v · Carrying away · Carrying concealed weapon · Carry the Iron · Carter v · Cartridge Co · Carucata · Carue Ikreruw I · CarUsie tables · Cas · Case · Case agreed on · Case In chief · Case made · Case of actual controversy · Case on appeal · Case reserved · Cases and controversies · Case stated · Case sufficient to go to a jury · Case system · Caseworker · Cas fortuit Ika fortwiy I · Cash account · Cash bail · Cash bail bond · Cash basis accounting · Cash book · Cash budget · Cash cycle · Cash discount · Cash dividend · Cash equivalent doctrine · Cash flow · Cashiered · Cashier's check · Cash market value · Cash method · Cash note · Cash position · Cash price · Cash refund annuity · Cash sale · Cash surrender value · Cash value · Cash value option · Cassity v · Cast · Cast away · Castellain Ikcestalan I · Castle doctrine · Castleguard rents · Casual bettor · Casual deficiency of revenue · Casual deficit · Casual ejector · Casual employment · Casual sale · Casualty Co · Casualty insurance · Casualty loss · Casus belli Ikeysas belay I · Casus major Ikeysas meyjar I · Catalepsy · Catallum I katrelam I · Catatonic · Catchpoll · Catch time charter · Categorical question · Cathedral preferments · Catholic Emancipation Act · Cats and dogs · Cattle gate · Cattle rustling · CATV · Cauda terrae Ikoda teriy I · Causal relation · Causare I kozeriy I · Causation · Cause list · Cause of injury · Cause suit to be brought · Cautionary instruction · Caveator I kceviyeydar I · Caveat venditor I kreviyat vendCldar I · Ceapgild I chiypgild I · Cease · Cease and desist order · Celation I saleyshanl · Celebrated cases · Celebration of marriage I selClbreyshan av mreraj I · Celler-Kefauver Act · Censorship · Censure and reproach · Censure I sensharI · Census bureau · Cental · Centena I santiynM · Centenarii I sentaneriyay I · Centeni I santiynay I · Center · Center of gravity doctrine · Central banks · Central Gulf S · Central Intelligence Agency · Central Republic Bank and Trust Co · Central Surety and Insurance Corporation v · Cepit et asportavit I sfypad ad cesparteyvatl · Cepit I sfypatl · Cerebellum · Cerebrum · Cereghino v · Ceremonial marriage · Certain and hazardous · Certain services · Certificate creditor · Certificate for costs · Certificate into chancery · Certificate lands · Certificate of acknowledgment · Certificate of amendment · Certificate of assize · Certificate of authority · Certificate of competency · Certificate of convenience and necessity · Certificate of deposit · Certificate of discharge · Certificate of election · Certificate of good conduct · Certificate of holder of attached property · Certificate of incorporation · Certificate of indebtedness · Certificate of insurance · Certificate of interest · Certificate of need · Certificate of occupancy · Certificate of participation · Certificate of public convenience and necessity · Certificate of purchase · Certificate of registry · Certificate of sale · Certificate of stock · Certificate of title · Certification mark · Certification of a check is acceptance · Certification of assize · Certification of check · Certification of labor union · Certification of questions of law · Certification of record on appeal · Certification to federal court · Certification to state court · Certified carriers · Certified copy · Certified mail · Certified public accountant · Certified question · Certify · Cessio in jure I seshiyow in juriy I · Cessionary bankrupt · Cessure · Cestui que trust · Cestui que use · CFR · Chaffery · Chain · Chain-certificate method · Chain of custody · Chain of possession · Chains and links · Chain stores · Challenge

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Challenge for cause · Challenge propter defectum · Challenge to array · Challenge to jury · Challenge to jury array · Chambers v · Champart I shompar I · Champion of the king or queen · Chance bargain · Chancellor of the Exchequer · Chancer · Chance verdict · Chandler Act · Changed circumstances · Change in accounting method · Change of beneficiary · Change of domiclle · Change of grade · Change of location · Change of venue · Chapel of ease · Chapman v · Character and habit · Character evidence · Characterization · Charge account · Charge by judge to jury beyond the original instructions · Charged · Charge-off · Charges for postal service · Charge to jury · Charging Hen · Charitable bequest · Charitable contributions · Charitable corporation · Charitable deduction · Charitable foundation · Charitable gift · Charitable immunity · Charitable institution · Charitable organizations · Charitable purpose · Charitable remainder · Charitable remainder annuity trust · Charitable remainder trust · Charitable trust · Charitable trusts · Charitable use · Charte-partie I shart-partiyI · Charter agreement · Charterer · Charter of affreightment · Chaste · Chaste character · Chattel Hen · Chattel mortgage bond · Chattel paper · Chauffeur · Checkerboard system · Check kiting · Check-off system · Check register · Check-roll · Checks and balances · Chemical analysis · Chemical Company v · Cheney v · CHent · CHent security fund · CHent's privUege · Cherokee Nation · Cheze · Chicago Board of Options Exchange · Chicago Board of Trade · Chicago Great Western R · Chickasaw Nation · Chief baron · Chief clerk · Chief executive · Chief Judge · Chief Justice · Chief Justice of England · Chief Justice of the Common Pleas · Chief lord · Chief magistrate · Chief office · Chief pledge · Chief rents · Children of one's grandchildren · Children'S court · Childs part · Child-stealing · Chilling a sale · Chilling effect doctrine · Chimel v · China were called emperors · Chiropody · Chiropractor · Chivalry · Chlld · Chlld abuse · Chlld labor laws · Chlld support · Chlld welfare · Chlldwit · Choice of law · Choral · Chose local · Chose transitory · Chout · Chrisman v · Christian name · Christmas day · Christopher C · Chronic alcoholism · Church courts · Church of England · Church property · Church register · Church school · Churning · CI · Cigarette tax · Cippi Isipay I · Cir · Circuit paper · Circuity of action · Circular letter of credit · Circular note · Circulated · Citators · Citizen 's arrest · Citizens' Nat · City Administrative Unit v · City councU · City courts · City Fire Ins · City of Chicago v · City of Compton v · City of Los Angeles v · City of Philadelphia v · City of Phoenix v · City of Salisbury v · City of South Euclid v · City Public Service Co · City real estate · City Ry · City v · CivD disabUlties · Civic · Civic enterprise · Civil and Canon Law · Civil and criminal courts · Civil arrest · Civil bail · Civil Code · Civil Code La · Civil commitment · Civil conspiracy · Civil corporation · Civil day · Civil death · Civil disobedience · Civil disorder · Civil docket · Civil fraud · Civil fruits · Civil injury · Civil Jaw · Civil jury trial · Civil liabUlty · Civil liberty · Civilly · Civil nuisance · Civil obligation · Civil offense · Civil office · Civil officer · Civil P · Civil possession · Civil Proc · Civil procedure · Civil Procedure and Supp · Civil process · Civil remedy · Civil responsibility · Civil rights · Civil Rights Acts · Civil rules · Civil servant · Civil Service Commission · Civil side · Civil suits · Civil trials · Civil Uberties · Civil war · Civil year · CivU · CivU authority clause · CivU bail · CivU contempt · CivU UabDity acts · Claflin trust · Claim · Claim adjuster · Claim and delivery · Claimant adjuster · Claim check · Claim in equity · Claim jumping · Claim of cognizance or of consuance · Claim of cognizance or of conusance · Claim of right doctrine · Claim of Uberty · Claim property bond · Claims Collection Act · Claims court · Clam I klcem I · Clap · Clarke v · Clark Ins · Clark v · Class action · Class actions · Class directors · Classes of stock · Class gift · Classification of confessions · Classification of crimes · Classification of risks · Classified · Classified tax · Class legislation · Class of life insurance policies · Class or division to which claim belongs · Class or representative action · Class rate · Class suits · Claunch v · Clause potestative · Clause rolls · Clayton Act · Clean · Clean Air Acts · Clean bill · Clean bill of health · Clean bill of lading · Clean draft · Clean hands doctrine · Clearance card · Clearance certificate · Clear and convincing proof · Clear and present danger doctrine · Clear annual value · Clear annuity · Clear chance · Clear days · Clear evidence or proof · Clearing account · Clearing corporation · Clearing loan · Clearings · Clearing title · Clear in understanding · Clear legal right · Clearly · Clearly erroneous · Clearly proved · Clear market price · Clear market value · Clear market value or fair market value · Clear reflection of income · Clear residue · Clear title · Clear title of record · Clear view doctrine · Clergyman · Clergy privilege · Clerical error · Clerical

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misprision · Clerical tonsure · Clerici pramotarii I klehrasay priynateriyay I · Clerico admittendo Iklehrakow redmatendow I · Clericus I klehrakas I · Clericus mercati I klehrakas markeyday I · Clerk of arraigns · Clerk of assise · Clerk of enrollments · Clerk of the Crown in Chancery · Clerk of the House of Commons · Clerk of the market · Clerk of the parliaments · Clerk of the peace · Clerk of the privy seal · Clerk of the signet · Clerk of the table · Clerks of indictments · Clerks of records and writs · Clerks of seats · Clerks of the chancery

Cleveland Boat Service v · Clifford trust · Clinical Laboratories v · Clinical tests · Clipped sovereignty · Close copies · Close corporation · Closed account · Closed court · Closed-end investment trust · Closed-end mortgage · Closed insurance policy · Closed primary · Closed season · Closed shop · Closed shop contract · Closed transaction · Closed union · Close-hauled · Close jail execution · Closely held corporation · Close relatives · Close rolls · Close season · Close to · Close writ · Closing · Closing argument · Closing costs · Closing entries · Closing estates · Closing statement · Club Corp · Club of Little Falls v · Clue · Cluster zoning · ClvU action · ClvU Aeronautics Board · ClvUlzation · Cmwlth · Co-adventurer · Co-agent · Coal Co · Coal notice · Coaster · Coasting trade · Coast Line R · Coast waters · Coastwise · Coat of arms · Cocaine · Cocket · Cocksetus I koksiydas I · Co-conspirator · Co-conspirator's rule · Code Civil · Code de commerce · Code de procedure civil · Code d'instruction criminelle · Co-defendant · Code have not been enacted into positive law · Code is derived from the Code Napoleon · Code La · Code Napoleon · Code noir · Code of criminal procedure · Code of Federal Regulations · Code of Justinian · Code of Military Justice · Code of MlllItary Justice · Code of professional responsibility · Code penal · Code pleading · Co-equal · Coggins v · Cognati Ikogneyday I · Cognitive · Cognovit judgment · Cognovit note · Cohan Rule · Co-heir · Co-heiress · Coif Ikoyfl · Coinage clause · Coinsurance · Coke · Coke's institutes · Coke to be of uncertain extent · Cold blood · Cold water ordeal · Coleman Production Credit Ass'n V · Collaboration · Collapsible corporation · Collapsible partnership · Collateral act · Collateral actions · Collateral ancestors · Collateral assurance · Collateral attack · Collateral consanguinity · Collateral contract · Collateral covenant · Collateral estoppel doctrine · Collateral facts · Collateral fraud · Collateral guaranty · Collateral heir · Collateral impeachment · Collateral inheritance tax · Collateral issues · Collateral kinsmen · Collateral limitation · Collateral line · Collateral loan · Collateral mortgage · Collateral negligence · Collateral note · Collateral powers · Collateral proceeding · Collateral promise · Collateral relatives · Collateral security · Collateral source rule · Collateral trust bond · Collateral trust bonds · Collateral warranty · Collectible · Collecting bank · Collection · Collective bargaining · Collective bargaining agreement · Collective bargaining unit · Collective labor agreement · Collective mark · Collective term to describe the customers of a business · Collect on delivery · Collector · Collector of decedent's estate · Collegatarius I kalegateriyas I · College v · Collegialiter I kaliyjiyeyladar I · Collide · Collini v · Collins v · Collision insurance · Colloquial expression for highly speculative securities · Collusive action · Collusive joinder · Colo · Colonial charter · Colonial la ws · Colonists · Colorable alteration · Colorable cause or invocation of jurisdiction · Colorable claim · Colorable imitation · Colorable transaction · Colore officii IkClloriy Clfishiyay I · Color of Title Act · Columbia · Columbia banks · Columbus v · Combination patent · Combs v · ComConditional agreements · Comer v · Comet · Comfort · Comfort letter · Coming to rest doctrine · Comity of nations · Comm · Commencement of action · Commencement of prosecution · Commence or begin · Comment · Comment upon the evidence · Commerce Act · Commerce among the states · Commerce clause · Commerce court · Commerce Department · Commerce powers · Commerce with foreign nations · Commerce with Indian tribes · Commercial agency · Commercial agent · Commercial assets · Commercial bank · Commercial bribery · Commercial broker · Commercial Cas · Commercial Code · Commercial corporation · Commercial court · Commercial credit company · Commercial domicile · Commercial establishment · Commercial frustration · Commercial insolvency · Commercial instrument · Commercial instruments · Commercial insurance · Commercial law · Commercial letter · Commercial letter of credit · Commercial loan · Commercial motor vehicle · Commercial name · Commercial paper · Commercial partnership · Commercial property · Commercial reasonableness · Commercial set · Commercial speech doctrine · Commercial traveler · Commercial unit · Commingle · Commingling of funds · Commission

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agent · Commission broker · Commission del credere · Commissioned office · Commissioner of Insurance v · Commissioner of Internal Revenue v · Commissioner's court · Commissioners of bail · Commissioners of deeds · Commissioners of Highways · Commission government · Commission merchant · Commission of a crime · Commission of anticipation · Commission of appraisement and sale · Commission of array · Commission of charitable uses · Commission of delegates · Commission of partition · Commission of rebellion · Commission of review · Commission of the peace · Commission of Utah v · Commission to examine witnesses · Commissive waste · Commitment fee · Committee for Industrial Organization v · Commodities clause · Commodity · Commodity Credit Corporation · Commodity future · Commodity futures option · Commodity Futures Trading Commission · Commodity loan · Commodity option · Commodity paper · Commodity rate · Common ancestor · Common appearance · Common appendant · Common appurtenant · Common area · Common assurances · Common bail · Common carrier · Common causes or suits · Common condidit · Common Council · Common counts · Common days · Common defense · Common design · Common disaster · Common disaster clause · Common enemy doctrine · Common enterprise · Commoners · Common fishery · Common fund doctrine · Common good · Common highway · Common humanity doctrine · Common intendment · Common intent · Common jury · Common knowledge · Common law · Common-la w action · Common-law assignments · Common-law cheat · Common law classifications · Common-law contempt · Common-law copyright · Common-law courts · Common-law crime · Common law crimes · Common-law dedication · Common-law extortion · Common-law jurisdiction · Common-law larceny · Common-law lien

Common-law marriage · Common-law or statutory · Common law pleading · Common law pleading and practice · Common-law trade-mark · Common-law trust · Common-law wife · Common nuisance · Common occupant · Common of estovers · Common of piscary · Common open space · Common prayer · Common repute · Comm on right · Common school · Common schools · Common seller · Common sense · Common stock · Common to both parties · Common traverse · Common wall · Common weal · Commonwealth ex rel · Commonwealth v · Communications · Communion · Communist · Community · Community account · Community Antenna Television Systems · Community debt · Community Federal Sav · Community house · Community lease · Community of interest · Community of profits · Community property · Community trust · Commutation of taxes · Commutation of tithes · Commutation ticket · Commutative and independent · Commuted value · Compact clause · Compact school district · Companies Clauses Consolidation Act · Company town · Company union · Company v · Comparable accommodation · Comparative advertising · Comparative interpretation · Comparative jurisprudence · Comparative negligence · Comparative rectitude · Compare also Variance · Compare Appropriation · Compare Chamber · Compare Debenture · Compare FIFO · Compare Improvements · Compare Lease · Compare Material fact · Compare Presumption · Compare Relevant evidence · Compare Transitory action · Compare Tutorship · Compel · Compelled or required to pay · CompelUng state interest · Compensable death · Compensable injury · Compensating balance · Compensating tax · Compensation Act · Compensation period · Compensatory damages · Compete · Competency proceedings · Competency to stand trial · Competent authority · Competent court · Competent evidence · Competent witness · Competitive advertising · Competitive bidding · Competitive civil service examination · Competitive traffic · Competitors · Compiled statutes · Completed · Completed contract method · Complete determination of cause · Complete in itself · Complete loss of sight · Completeness · Completeness rule · Complete operation rule · Complete payment · Complete voluntary trust · Completion · Completion bond · Complex trust · Compliance · Complicated · Complicity Ikamplisadiy I · Comply · Composed of · Composite work · Composition deed · Composition in bankruptcy · Composition of matter · Composition with creditors · Compounding a felony · Compounding crime · Compound larceny · Comprehensive coverage · Comprehensive insurance · Comprehensive zoning plan · Compremesso Ikompremesow I · Comprise · Com Products case · Compromise and settlement · Compromise verdict · Comptroller General · Comptroller of currency · Compulsory arbitration · Compulsory attendance ·

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Compulsory counterclaim · Compulsory disclosure · Compulsory insurance · Compulsory joinder · Compulsory nonsuit · Compulsory payment · Compulsory process · Compulsory sale or purchase · Compulsory self-incrimination · Computation of time · Comte Ikownt l · Con- · Conard v · Conceal · Concealment · Concealment may be basis of estoppel · Concealment of crime · Conceder I konseydey I · Concern · Concerning the clergy · Concerning the nature of writs · Concerning those that break prison · Concert · Concert of action rule · Conclusion against the form of the statute · Conclusion of fact · Conclusion of law · Conclusive evidence · Conclusive presumption · Conclusive presumptions · Concomitant actions · Concubinatus I kagkyuwbaneydas I · Concubine I kogkyabayn I · Concurrence deloyale · Concurrent causes · Concurrent conditions · Concurrent consideration · Concurrent estates · Concurrent Hens · Concurrent insurance · Concurrent interests · Concurrent jurisdiction · Concurrent lease · Concurrent negligence · Concurrent power · Concurrent resolution · Concurrent sentence · Concurrent sentences · Concurrent tortfeasors · Concurrent writs · Concurring opinion · Condemnation money · Conditional assault · Conditional bequest · Conditional contract · Conditional creditor · Conditional fee · Conditional guaranty · Conditional indorsement · Conditional intent · Conditional judgment · Conditional legacy · Conditional limitation · Conditionally privileged communication · Conditional pardon · Conditional payment · Conditional promise · Conditional release · Conditional right · Conditional sale · Conditional sale contract · Conditional sentence · Conditional will · Conditional zoning · Condition of being infamous · Condition of employment · Conditions concurrent · Conduce · Conduct money · Conduit concept · Cone · Confederate money · Confederate states · Confederation articles · Conference of Original Free Will Baptists of N · Confessing error · Confession and avoidance · Confession of defense · Confession of judgment · Confide · Confidence game · Confidential communication · Confidential creditor · Confidentiality · Confidential relation · Confirmation of sale · Confirmed credit · Confirmed letter · Confirmee I konfllrmiy I · Confirming bank · Confirmor I kllnfirmllr I · Confiscare I konfllskeriy I · Confiscation acts · Confiscation cases · Confiscatory rates · Conflicting presumptions · Conflict of authority · Conflict of interest · Conflict o f laws · Conflict o f personal laws · Conflicts of law · Conformable to law · Conformed copy · Conforming · Conforming use · Conformity Act is no longer effective · Conformity hearing · Confusion of boundaries · Confusion of debts · Confusion of goods · Confusion of rights · Confusion of titles · Con game · Conge d'accorder Ikonzhey dakordey I · Conge d'emparler Ikonzhey domparley I · Conge d'eslire I konzhey deHrl · Conge Ikonjey Ikonzhey I · Congenital · Conglomerate merger · Congregate · Congressional apportionment · Congressional committee · Congressional district · Congressional immunity · Congressional powers · Congressional Record · Congressman · Congress must originate in the House · Congress to provide mortgage loans to farmers · Congress votes to override the veto · Conjoint robbery · Conjoints · Conjoint win · Conjunctive denial · Conjunctive or alternative obligation · Conjurator Ikonjareydar I · Conn · Connect · Connected · Connected with in use or occupancy · Connecting carrier · Connecting factors · Connecting in a manner denoting union · Connecting up doctrine · Connection · Conner v · Connexite I koneksiytey I · Connive Ikanayv I · Conociamento Ikonosiyamentow I · Conquest IkoIJkwesti · Conscience of the court · Conscientious objector · Conscientious scruple · Consecutive · Consecutive sentence · Consecutive sentences · Consensual and real · Consent decree · Consent dividend · Consent judgment

Consent jurisdiction · Consent of victim · Consent search · Consent to be sued · Consent to notice · Consequence · Consequential damages · Conservator of the peace · Conservators of the peace · Conserve · Consider · Considerable · Considered · Consignment contract · Consignment sale · Consist · Consistent · Consistor · Consol · Consolato del mare Ikonsowlatow del marey I · Consolidated appeal · Consolidated balance sheet · Consolidated balance sheets · Consolidated bond · Consolidated corporations · Consolidated laws · Consolidated mortgage · Consolidated school district · Consolidated statements · Consolidated tax returns · Consolidation of actions · Consolidation of cases · Consolidation of corporations · Consonant statement · Conspicuous place · Conspicuous term or clause · Conspiracy in restraint of trade · Conspire · Const · Constabularius I kanstZbyaleriyas I · Constant · Constantly · Constituency · Constituent elements ·

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Constituere I konstatyuwariy I · Constituimus I konstatuwamas I · Constitutional convention · Constitutional court · Constitutional freedom · Constitutional homestead · Constitutional law · Constitutional liberty or freedom · Constitutional limitations · Constitutional office · Constitutional officer · Constitutional powers · Constitutional privilege · Constitutional protections · Constitutional questions · Constitutional right · Constitutional tort · Constitution of the United States · Constitutor IkonstQtyuwdQr I · Construction contract · Construction distinguished · Construction draw mortgage · Construction of will · Construction warranty · Constructive adverse possession · Constructive assent · Constructive authority · Constructive bailment · Constructive breach · Constructive breaking into a house · Constructive condition · Constructive contract · Constructive conversion · Constructive desertion · Constructive dividend · Constructive eviction · Constructive filing · Constructive force · Constructive fraud · Constructive intent · Constructive knowledge · Constructive larceny · Constructive loss · Constructive malice · Constructive notice · Constructive ownership · Constructive payment · Constructive possession · Constructive receipt of income · Constructive seisin · Constructive service of process · Constructive taking · Constructive total loss · Constructive treason · Constructive trust · Constructive trust ex delicto · Constructive willfulness · Consular invoice · Consular marriage · Consulate · Consul general · Consulta ecclesia I kansalta akliyziygj · Consumer advocate · Consumer boycott · Consumer credit · Consumer Credit Code · Consumer Credit Protection Act · Consumer credit sale · Consumer credit transaction · Consumer debt · Consumer goods · Consumer lease · Consumer Leasing Act · Consumer loan · Consumer Price Index · Consumer product · Consumer Product Safety Act · Consumer Product Safety Commission · Consumer report · Consumer's cooperative · Consummate lien · Consumption · Consumption tax · Containerization · Containing or covered with filth · Contamination · Contango IkontzIjgow I · Contemplate · Contemplation · Contemplation of bankruptcy · Contemplation of death · Contemplation of insolvency · Contempt of Congress · Contempt of court · Contempt power · Contempt proceeding · Contempts are also classed as civil or criminal · Contentious jurisdiction · Contentious possession · Contentment · Contents and not contents · Contents unknown · Content validation · Contestable clause · Contestation of suit · Contested election · Contest of wUl · Continental Congress · Continental currency · Continental Tobacco Co · Contingency contract · Contingency reserve · Contingency with double aspect · Contingent annuity · Contingent beneficiary · Contingent claim · Contingent debt · Contingent fee · Contingent fees · Contingent fund · Contingent interest in personal property · Contingent legacy · Contingent liability · Contingent limitation · Contingent remainder · Contingent trust · Contingent use · Continuing breach · Continuing consideration · Continuing contract · Continuing covenant · Continuing damages · Continuing forever · Continuing guaranty · Continuing jurisdiction · Continuing nuisance · Continuing offense · Continuing trespass · Continuing warranty · Continuous adverse use · Continuous crime · Continuous injury · Continuously · Contra account · Contra accounts · Contra-balance · Contraceptive · Contraceptivism · Contract bond · Contract carrier · Contract clause · Contract for deed · Contract for sale of goods · Contract for sale of land · Contract implied in fact · Contract implied in law · Contract law · Contract not to compete · Contract of affreightment · Contract of benevolence · Contract of insurance · Contract of record · Contract of sale · Contract rights · Contracts · Contract system · Contractual obligation · Contract under seal · Contract which has been performed · Contract zoning · Contradictory judgment · Contrary · Contrary to law · Contrary to the evidence · Contributing cause · Contributing to delinquency · Contribution clause · Contributory cause · Contributory infringement · Contributory negligence · Contrivance · Controlled company · Controlled Substance Act · Controlled Substance Acts · Control stock · Contumacious conduct · Contuse · Conunon property · Conununity property · Conusance of pleas · Convalescence · Convenience and necessity · Conventional home mortgage · Conventional interest · Conventional lien · Conventional loan · Conventional mortgage · Conversely · Conversion hysteria · Convertible bond · Convertible collision insurance · Convertible debenture · Convertible debt · Convertible insurance · Convertible life insurance · Convertible securities · Convertible security · Convertible stock · Convertible subordinated debenture · Convertible term insurance · Convey · Conveyor's heirs · Cook v · Cool blood · Cooley doctrine · Cooling off

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period · Cooling v · Cooperate · Cooperation clause · Cooperative apartment · Cooperative association · Cooperative corporation · Cooperative federalism · Cooperative housing · Cooperative insurance · Cooperative negligence · Coordinate · Coordinate jurisdiction · Coordinate system · Co-owner · Coparties · Copeland Act · Copesmate I kowpsmeyt I · Copland v · Coprincipal · Copyhold commissioners · Copyholder · Copyright law · Copyright notice · Corabi v · Cordon v · Corn laws · Cornwell V · Corn whisky · Coroner's court · Coroner's inquest · Corp · Corpnership · Corporal imbecility · Corporal oath · Corporal punishment · Corporal touch · Corporate agent · Corporate authorities · Corporate body · Corporate bonds

Corporate books · Corporate charter · Corporate citizenship · Corporate crime · Corporate domicile · Corporate entity · Corporate excess · Corporate franchise · Corporate franchise or entity · Corporate liabllity · Corporate mortgage trust · Corporate name · Corporate officers · Corporate opportunity doctrine · Corporate powers · Corporate purpose · Corporate seal · Corporate shares · Corporate stock · Corporate trustees · Corporation de facto · Corporation de jure · Corporation if M and S are mother and son · Corporation law · Corporation of America v · Corporations · Corporations and Taxation v · Corporation sole · Corporation v · Corporeal hereditaments · Corporeal possession · Corporeal property · Corpse Ikorps I · Corpus juris Ikorpas juras I · Corpus Juris Secundum · Correct attest · Corrected policy · Correctional institutions · Correctional system · Correi Ikowriyay I · Correlative rights · Correspondence audit · Correspondent · Correspondent bank · Corrupt · Corruptly · Corrupt motive doctrine · Corrupt practices acts · Cost accountant · Cost accounting · Cost basis · Cost bond · Cost contract · Cost depletion · Cost method · Cost of living clause · Cost-plus contract · Costs de incremento · Costs may be assessed · Costs of collection · Costs of the day · Costs to abide event · Cotenancy · Coterelli IkodQrelay I · Coterellus I kodQrelQs I · Coterie IkowdQriy I · Cotland · Cotsetus I kotsiydQS I · Cotuchans · Couchant IkciwchQntl · Council and elected by the General Assembly · Council v · Councll of the bar · Councll of the north · Counsel of record · Counter-affidavit · Counter-bond · Counterclaim distinguished · Counter-deed · Counter-feisance · Counterfeit coin · Counterfeiter · Counterfeiters of money · Counter-letter · Counter-mark · Counter offer · Counterpart writ · Counter-security · Counter-signature · Countervailing equity · Countervail livery · Counter wills · Counteur Ikawntyur I · Country Club v · Country whence he came · Counts or earls · County affairs · County attorney · County auditor · County Bd · County board · County Board of Education v · County board of supervisors · County bonds · County business · County commissioners · County courts · County Emp · County ex rel · County Fair Ass'n v · County of DuPage v · County office · County officers · County palatine · County powers · County property · County purposes · County road · County-seat · County supervisors · County-town · County v · County warrant · County Water Imp · Coupe v · Coupled with an interest · Coupon bond · Coupon bonds · Coupon notes · Coupon securities · Course of business · Course of dealing · Course of employment · Course of river · Course of the voyage · Course of trade · Course of vein · Course of vessel · Courses and distances · Court calendar · Court Christian of things merely spiritual · Court commissioner · Court Commissioners · Court for an order for enforcement of law · Court for review · Court for the Trial of Impeachments · Court of Appeals for review · Court of Chivalry · Court of Civn Appeals · Court of Common Pleas · Court of competent jurisdiction · Court of Conciliation · Court of Conscience · Court of County Commissioners · Court of Criminal Appeals · Court of Customs and Patent Appeals · Court of First Instance · Court of First Judicial Dist · Court of general jurisdiction · Court of Great Sessions in Wales · Court of King's Bench to a judgment of that court · Court of last resort · Court of limited jurisdiction · Court of Marshalsea Ikard av marshalsiy I · Court of Military Appeals · Court of original jurisdiction · Court of Palace at Westminster · Court of Policies of Assurance · Court of Second Judicial Dist · Court of Shepway · Court of Special Sessions · Court of Sweinmote Ikard OlV sweynmowtl · Court of the Arches · Court of the Chief Justice in Eyre · Court of the Counties Palatine · Court of the Duchy of Lancaster · Court of the Earl Marshal · Court of the Lord Higb Admiral · Court of the Lord High Steward · Court of the Official Principal · Court of Third Judicial Dist · Court or higher office · Court packing plan · Court power to adopt Federal Rules of Civil Procedure · Court proceedings · Court reporter · Court room · Court rule · Courts · Courts martial · Courts of

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Husting in England no longer exist · Courts of record · Courts of the Forest · Courts of the Franchises · Courts of the United States · Court system · Court to manage the estate of a protected person · Courtyard · Cousinage · Cousins-german are first cousins · Covenant appurtenant · Covenant for further assurance · Covenant for possession · Covenant for quiet enjoyment · Covenant in gross · Covenant not to compete · Covenant not to sue · Covenant of non-claim · Covenant of quiet enjoyment · Covenant of right to convey · Covenant of seisin · Covenant of warranty · Covenant running with land · Covenant running with title · Covenants against incumbrances · Covenants for title · Covenant to convey · Covenant to renew · Covenant to stand seised · Cover · Coverage · Cover-all clause · Cover note · Cover-up · Coward or craven · Craft union · Craighead · Craig v · Crashley v · Crastino IkrzstQnow I · Crawford v · Crazy · Cream Co · Cream v · Created by law · Creation of trust · Credible person · Credible witness · Credibllity · Credibly informed · Credit advertising · Credit bureau · Credit card · Credit card crime · Credit disclosure · Credited · Credit foncier Ikreydiy fonsyey I · Credit insurance · Credit line · Credit memorandum · Credit mobiller Ikreydiy mowbiylyey I · Creditor at large · Creditor beneficiary · Creditor's bill or suit · Creditor's claim · Creditors' meeting · Credit rating · Credit report · Credits · Credit sale · Credit slip · Credit union · Credit Union v · Creech v · Creed · Cremation · Crews v · Crew Ust · Crim · Crime against law of nations · Crime against nature · Crime against property · Crime Control Act · Crime insurance · Crime of non-support · Crime of omission · Crime of violence · Crimes mala in se · Crimes mala prohibita · Crime statistic · Criminal abortion · Criminal act · Criminal action · Criminal act requiring investigation by police · Criminal admissions · Criminal anarchy · Criminal Appeals Act · Criminal attempt · Criminal behavior · Criminal capacity · Criminal cases · Criminal charge · Criminal code · Criminal conspiracy · Criminal contempt · Criminal conversation · Criminal damage · Criminal forfeiture · Criminal fraud · Criminal gross negligence

Criminal infringement · Criminal insanity · Criminal instrumentality rule · Criminal intent · Criminalist · Criminalistics · Criminalization · Criminal jurisdiction · Criminal justice system · Criminal law · Criminal laws · Criminal libel · Criminal malversion · Criminal mischief · Criminal motive · Criminal negligence · Criminal non-support · Criminal offense · Criminal pleading · Criminal pleas · Criminal practice · Criminal procedure · Criminal proceeding · Criminal process · Criminal prosecution · Criminal protector · Criminal registration · Criminal sanctions · Criminal statute · Criminal statutes or codes · Criminal syndicalism · Criminal trespass · Criminology · Crippling · Crisis · Critical stage · Crook · Crooked · Crop insurance · Cross-action · Cross appeal · Cross-bill · Cross-claim · Cross-claims · Cross collateral · Cross-complaint · Cross-demand · Crossed check · Cross-errors · Cross-examination · Crossing · Cross interrogatory · Cross-licensing · Cross-remainder · Crown and opposed independence · Crown cases · Crown cases reserved · Crown court · Crown debts · Crown lands · Crown law · Crown office · Crown office in chancery · Crown paper · Crown side · Crown side of the Queen's Bench Division · Crown solicitor · Cruce signati Ikruwsiy sayneydiy I · Crude · Cruel and Inhuman treatment · Cruel and unusual punishment · Cruelty to animals · Cruelty to children · Cry · Cuckold · Culpable homicide · Culpable neglect · Culpable negligence · Cultivated land · Cultivator · Cum rights · Cum testamento annexo · Cumulation and conflict of warranties · Cumulative dividend · Cumulative evidence · Cumulative Ikyumyaladav I · Cumulative legacies · Cumulative offense · Cumulative preferred · Cumulative preferred dividend · Cumulative punishment · Cumulative remedy · Cumulative sentence · Cumulative sentences · Cumulative stock · Cumulative voting · Cuneator Ikyuwniyeydarl Lat · Cunningham v · Curagulos I kyureygyalas I · Cura I kyura I · Curate I kyuratl · Curatio I kyareyshow I · Curative admissibility · Curative admissibility of evidence · Curative I kyuradav I · Curative statute · Curatorship · Cure · Cure by verdict · Cure of souls · Curia personae Ikyuriya parsowniy I · Curing title · Current account · Current assets · Current expense · Current expenses · Current funds · Current income · Current liabilities · Current maintenance · Current market value · Current money · Current News Features v · Current obligation · Current obligations · Current price · Current revenues · Current value · Current wages · Current year · Cursing · Curtail · Cust · Custodial arrest · Custodial interrogation · Custodian · Custodian bank · Custodian of archives · Custody account · Custody of children · Custody of the law · Custom and usage · Customarily · Customary

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court-baron · Customary dispatch · Customary estates · Customary freehold · Customary interpretation · Customary law · Customary services · Customary tenants · Custom duties · Customer · Customers' goods · Customers' man · Custom-house broker · Customs and Patent Appeals Court · Customs broker · Customs duty · Customs House · Customs Service · Custos horrei regii Ikastas hohriyay riyjiyay I · Custos I kastas I · Cut · Cut-over land · CWAS

## D

Daily occupation · Daily rate of pay · Dale and sale · Damage-cleer · Damages ultra · Damage to person · Damnum rei amissae IdzmnQm riyay Qmisiy I · Dancy v · Dane-law or Dane-lage · Dangeria IdznjiriyQ I · Danger invites rescue · Dangerous · Dangerous criminal · Dangerous instrumentality · Dangerous machine · Dangerous occupation · Dangerous place · Dangerous-tendency test · Dangers of navigation · Dangers of the river · Dangers of the sea · Dare I deriy I · Darling v · Dartmouth College case · Dartmouth College v · Dash · Date of bankruptcy · Date of cleavage · Date of injury · Date of issue · Date of maturity · Datta v · Davis-Bacon Act · Dawson v · Day · Day certain · DayHght saving time · Day In court · Daylight · Day loan · Day of atonement · Day on which court is in session · Day order · Days in bank · Daysman · Days of grace · Daytime · DDB · Dead asset · Dead beat · Dead-born · Dead letter · Deadlocked jury · Deadly force · Deadly weapon · Dead stock · Dead storage · Dead time · Deaf person · Dealer · Dealer's talk · Dealings · De alto et basso Idiy reltow et bresow I · Dean of the Arches · Death benefits · Death by wrongful act · Death certificate · Death dissolves all things · Death duty · Death on High Seas Act · Death penalty · Death records · Death sentence · Deathsman · Death taxes · Death trap · Death warrant · Debasement · Debenture bond · Debenture indenture · Debet sine breve I debat sayniy briyviy I · Debit balance · Debit I debatl · Debitum sine brevi I debadam sayniy briyvay I · De Boe v · De bonis asportatis Idly bownas resparteydas I · De bonis propriis I diy bownas prowpriyasl · Debt adjusting · Debt adjustment · Debt by simple contract · Debt by specialty or special contract · Debt cancellation · Debt consolidation · Debt-equity ratio · Debt financing · Debt limitations · Debt of record · Debt pooling · Debt security · Debt service · Debts of record · Debts recoverable in the civil courts · Dec · Deceased · Decedent's estate · Decency · Deception · Deceptive' sales practices · Decision on merits · Decisive or decisory oath · Declaration against interest · Declaration date · Declaration in chief · Declaration of dividend · Declaration of estimated tax · Declaration of homestead · Declaration of Independence · Declaration of intention · Declaration of legitimacy · Declaration of pain · Declaration of Paris · Declaration of right · Declaration of rights · Declaration of state of mind · Declaration of Taking Act · Declaration of trust · Declaration of war · Declarator of trust · Declaratory action · Declaratory judgment · Declaratory Judgment Act · Declaratory or obligatory · Declaratory part of a law · Declaratory statute · De clero I diy klirow I · Decline · Declining balance method · Decomposed · Decoy letter · Decreasing term insurance · Decree · Decree nisi I dakriy miysay I · Decree of distribution · Decree of insolvency · Decree of nUllity · Decree pro confesso · Decrees in equity are either final or interlocutory · Decreet absolvitor Idakriyd abzolvadar I · Decrepit I dakrepatl · Decretal order · Decretal order I dakriydal ordar I · Decriminalization · Dedication and reservation · Deductible · Deductible clause · Deductions in respect of a decedent · Deed absolute · Deed for a nominal sum · Deed in fee · Deed of agency · Deed of covenant · Deed of distribution · Deed of gift · Deed of release · Deed of separation · Deed of settlement · Deed of trust · Deed poll · Deed to lead uses · Deemed transferor · Deep Rock doctrine · De facto adoption · De facto court · De facto government · De facto judge · De facto marriage · De facto officer · De facto segregation · Defamation by broadcast · Defamatory · Defamatory libel · Defaulter · Default judgment · Defeasance clause · Defeasible deed · Defeasible fee · Defeasible title · Defeasibly vested reCompare Reversion · Defeasibly vested remainder · Defeasive · Defect in highway or street · Defective condition · Defective execution · Defective pleadings · Defective record · Defective title · Defective verdict · Defect of form · Defect of parties · Defect of substance · Defectus sanguinis · Defendare I defanderiy I · Defendemus I defadiymasl · Defenestration I diyfenastreyshan I · Defense attorney · Defense bonds · Defense of habitation

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· Defense of insanity · Defense of property · Defer · Deferral · Deferral period · Deferred annuity · Deferred bonds · Deferred charge · Deferred charges · Deferred claims · Deferred compensation · Deferred credits · Deferred dividend · Deferred income · Deferred lien · Deferred payments · Deferred sentence · Deferred stock · Deficiency assessment · Deficiency bill · Deficiency decree · Deficiency dividend · Deficiency judgment · Deficiency notice · Deficiency suits · Deficit spending · Defined pension plan · Definite · Definite authoritative opinions or tenets · Definite sentence · Definitive sentence · Deflect · Deformity · Degrade · Degradulg · Degree of proof · Degrees o f crime · Degrees of kin · Degrees of murder · Degrees of negligence · Deihl v · Deitel v · D e jure corporation · De jure government · De jure I diy juriy I · De jure segregation · Delay i s reprobated i n law · Delay rental · Delays in law are odious · Del credere I del kreydarey I · Delectus personle I dalektas parsowniy I · Delegation of powers · De Leon v · Deliberate deception or double dealing · Deliberately · Deliberate speed · Delimitation · Delinquency · Delinquency charges · Delinquent child · Delinquent taxes · Delist · Delivery bond · Delivery in escrow · Delivery of the thing · Delivery order · Demand clause · Demand deposit · Demand deposits · Demand draft · Demand loan · Demand note · Demarcation · Demeanor evidence · De melioribus damnis · Demesne as of fee · Demesne lands · Demesne lands of the crown · Demesnial · Demi I demiy-I · Demi-mark · De minimis doctrine · De minimis non curat lex · Demi-official · Demise and redemise · Demise charter · Demised premises · Demise of the crown · DemobUization · De modo decimandi I diy mowdow desamamday I · Demolish · Demonstrate · Demonstrative bequest

Demonstrative evidence · Demonstrator · Demotion · Demurrage lien · Demurrer book · Demurrer ore tenus · Demurrer to evidence · Demurrer to interrogatories · Denationalization · Denier I danayar I · Denize I danayz I · Denizen I denazan I · Denny v · Denomination · De novo hearing · De novo trial · Density zoning · Denver Local Union No · Deny · De parco fracto Idly parkow frrektow I · Department · Department of Defense · Department of Energy · Department of State · Department of Transportation · Depecage · Dependence · Dependent according to law · Dependent conditions · Dependent contract · Dependent covenant · Dependent promise · Dependent relative revocation · De plagis et mahemio IdlY pleyjas et mahiymiyow I · Depletable economic interest · Deplete · Depletion · Depletion allowance · Depletion deduction · Depletion reserve · Depner v · Deponent I dapOwnantl · Depopulation of houses was a public offense · Deposit · Deposit box · Deposit company · Deposit in court · Deposit insurance · Deposit Insurance Act · Deposit Insurance Corporation · Deposition de bene esse I depazishan diy biyniy esiy I · Deposit of title-deeds · Deposito I deyposiytow I · Depository bank · Deposit premium · Deposit ratio · Deposit slip · Depraved heart murder · Depraved mind · Depreciable life · Depreciation · Depredation reserve · De presenti I diy prazentay I · Depression · Depressive reaction · Deprivation of property · Dept · Deputy consul · Deputy sheriff · Deputy steward · Derangement · Derby v · Derivative action · Derivative contraband · Derivative conveyances · Derivative evidence · Derivative possession · Derivative suit · Derivative tort · Derive · Derived · Derogation from grant · De sa vie I da sa viy I · De scaccario I diy skakeriyow I · Descend · Descendent · DescendibUity of future interests · Descent and descendants · Descent cast · Describe · Description · Description of the person · Descriptive · Desecrate · Desegregation · Desert · Desertion and non-support · Deserving · Designate · Designating petition · Designed · Designedly · Design patent · Desk a udit · Desperate act or measure · D'Esquiva v · Dessen v · Destination blll · Destination contract · Destitute or necessitous circumstances · Destructible trust · DestructibUity · DestructibUity of contingent remainders · Detain · Detection · Detective · Detector · Detention hearing · Detention in a reformatory · Deter · Deterioration · Determinable fee · Determinable fee or fee simple · Determinate hospitalization · Determinate obligation · Determinate or indeterminate obligation · Determinate sentence · Determination letter · Determined by process of law · Determinism · Deterrent · Detour · De transgressione I diy tramzgreshiyowniyI · Detrimental reliance · Detriment to promisee · Devaluation · Developed water · Deviation doctrine · Deviation well survey · Device · Dfet · Diagnostic tests · Dicast Idaykrest l · Dickens v · Dictum de Kenilworth · Dies datus in banco I dayiyz deydOls in brelJkowl · Dies gratiae Idayiyz greyshiyiy I ·

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Dies Idayiyz I · Dies marchiae I dayiyz markiyiy I · Dies nefasti I dayiyz niyfrestay I · Dies non juridicus is a day · Dieu son acte I dyuw son akt l · Diffuse · Digests · Dignitary · Dilatory defense · Dilatory exceptions · Dilatory pleas · Diligent · Diligent inquiry · Dillon's Rule · Dilution doctrine · Diminution in value · Diminution of damages · Diminution of record · Dinarchy I daynarkiy I · Diocesan I dayosasan I · Direct action · Direct and proximate cause · Direct attack · Direct cause · Direct charge-off method · Direct contempt · Direct conversion · Direct costs · Direct damages · Directed verdict · Direct estoppel · Direct evidence · Direct examination · Direct injury · Direct interest · Direction · Direct line · Direct loss · Directly · Directly or immediately · Direct or immediate cause · Director of the Mint · Directory trust · Direct payment · Direct placement · Direct selling · Direct tax · Direct trust · Disability · Disability benefits · Disability clause · Disability insurance · Disability retirement · Disabling restraints · DisabUity compensation · Disallow · Disapprove · Disaster · Disaster loss · Disbarment · Discargare I diskargeriy I · Dischargeable claim · Discipline · DiscipUnary proceedings · Disclaimer · Disclose · Disclosure · Disclosure by parties · Discontinuing easement · Discount bond · Discount broker · Discount market · Discount or rebate for prepayment · Discount rate · Discount shares · Discount stock · Discover · Discovered perU doctrine · Discovery · Discovery practice · Discovery rule · Discovery vein · Discreetly · Discretely · Discretionary account · Discretionary acts · Discretionary damages · Discretionary order · Discretionary power · Discretionary review · Discretionary trust · Discretion consists in knowing what is just in law · Discrimination · Disentaillng statutes · Disentailment · Disfigurement · Dishonesty · Disinfected · Disinterested · Disinterested witness · Disintermediation · Disjunctive allegation · Disjunctive covenants · Dislocation · Disloyal · Dismissal and nonsuit · Dismissal compensation · Dismissal for cause · Dismissal without prejudice · Dismissal with prejudice · Dismissed for want of equity · Dismortgage I dismorgQj I · Disobedience · Disobedient child · Disorderly · Disorderly conduct · Disorderly house · Disorderly persons · Disorderly picketing · Disorientation · Disparagement of goods · Disparagement of title · Disparaging Instructions · Disparity · Dispatch · Dispel · Dispensary · Dispense · Displaced person · Displacement · Display · Disposable earnings · Disposal · Dispose of · Disposition hearing · Disposition without trial · Dispossess · Dispunlshable · Disputable presumption · Disregard · Disrepair · Disrepute · Disruptive conduct · Dissenter · Dissipate · Dissolute · Dist · Distance · Distinct · Distinctively · Distinctive name · Distinct or different · Distinguished from abet

Distinguished from admission · Distinguished from amnesty · Distinguished from commutation · Distinguished from confession · Distinguished from execution · Distinguished from interlocutory · Distinguished from parole · Distinguishing mark · Distlllery · Distort · Distraction rule · Distrainer or distrainor · Distress and danger · Distressed goods · Distressed property · Distressed sale · Distress infinite · Distress warrant · Distribute · Distribution in kind · Distribution in liquidation · Distributive clause · Distributive deviation · Distributive finding of the issue · Distributive justice · Distributive share · Distributor · District attorney · District clerk · District Court for Western District of Kentucky · District courts · Districting · District judge · District parishes · District school · District v · DistUl · DistUled liquor or distUled spirits · DistUler · Disturb · Disturbance of common · Disturbance of franchise · Disturbance of patronage · Disturbance of peace · Disturbance of public meetings · Disturbance of public or religious worship · Disturbance of tenure · Disturbance of ways · Ditch Co · Diversion program · Diversity jurisdiction · Diversity of citizenship · Dives I dayviyzl · Divestment · Divide · Divide and pay over rule · Divided court · Dividend addition · Dividend income · Dividends received deduction · Dividend yield · Divine right of kings · Divisible and indivisible · Divisible contract · Divisible divorce · Divisible obUgation · Divisible offense · Divisible or indivisible obligation · Divisional securities · Division in the Department of Labor · Division of powers · Divorce a mensa et thoro · Divorce by consent · Divorce from bed and board · Divorce law · Divorce proctors · Dlness · Dobson v · Dockage · Docket · Docket fee · Docket fees · Dock-master · Doc land · Doctor-patient privUege · Doctrinal interpretation · Documentary credit · Documentary draft · Documentary evidence · Documentary evidence of title · Documentary instructions · Documentary originals rule · Documentary stamp ·

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Documentation · Document of title · DOD · DOE · DOHSA · Doing business · Doli · Dollar averaging · Dollar S · Dollert v · Dombrowski doctrine · Domesday Book · Domestic · Domestic and foreign · Domestic animals · Domesticated · Domestic authority · Domestic bill · Domestic commerce · Domestic corporation · Domestic courts · Domestic creditor · Domestic exports · Domestic International Sales Corporation · Domestic judgment · Domestic jurisdiction · Domestic relations · Domestic servant · DomicDlary administration · Domicile of choice · Domicile of origin · Domicile of succession · Domicile of trustee · Domiclle · Dominant theme · Dominion Line v · Dominium utile I daminiyam yuwdaliy I · Dominlcal · Domino volente I domanow valentiy I · Dominus I domanas I · Dommages interets · Domus dei I dowmas diyay I · Donated stock · Donated surplus · Donation lands · Donative trust · Done by design or intention · Donee beneficiary · Donee of power · Donelon v · Donis · Door closing doctrine · Dope · Dormant claim · Dormant corporation · Dormant execution · Dormant judgment · Dormant partner · Dormant partners · Double adultery · Double assessment · Double commissions · Double costs · Double creditor · Double damages · Double declining method · Double eagle · Double entry · Double entry bookkeeping · Double hearsay · Double house · Double indemnity · Double insurance · Double patenting · Double plea · Double proof · Double recovery · Double rent · Double right · Double standard · Double taxation · Double tax rule · Double use · Double value · Double voucher · Double waste · Double will · Doubted · Doubting · Douglas v · Dovetail seniority · Dower · Dower b y common law · Dower b y custom · Dowie stones · Dow Jones Average · Down payment · Dowry · Dozie v · Draft board · Dragnet clause · Drago doctrine · Drainage district · Drainage rights · Drama · Dram-shop · Dram Shop Acts · Drawing account · Drawing lots · Dredging Co · Dred Scott Case · Drifts of the forest · Drilling Co · Drive-it-yourself cars · Driver's license · Driving · Driving whlle intoxicated · Droit de bris I drwo dabriy I · Droit-droit · Droit Fr · Droit moral · Drop shipment delivery · Drop shipper · Drover's pass · Drug abuse · Drug addict · Drug Co · Drug dependence · Drugless healer · Drugless healers · Drugs · Drumbar v · Drunkenness · Drunk-o-meter · Dry check · Dry-creft · Dry exchange · Dry hole clause · Dry mortgage · Dry receivership · Dry rent · Dry state · Dry trust · D's children · Dual agent · Dual business · Dual citizenship · Dual court system · Duchy Court of Lancaster · DUcit connection · DUcit distillery · DUcit trade · Due · Due and proper care · Due and reasonable care · Due bill · Due care · Due compensation · Due consideration · Due course holder · Due course of law · Due date · Due diligence · Due influence · Dueling · Due notice · Due-on-sale clause · Due posting · Due process clause · Due process of law · Due process rights · Due proof · Due to · Duke · Duke of York's Laws · Duke v · Duly ordained minister of religion · Duly qualified · Dumb-bidding · Dummy corporation · Dummy director · Dummy stockholder · Dump · Dumping · Dumping Act · Duncan v · Dunlop v · Duplex house · Duplicate taxation · Duplicate wUl · Duplicitous appeal · Dupuytren's contraction · Dupuy v · Durable goods · Durable leases · Durante absentia · Durante minori ztate · Duration · Duress · Duress of goods · Duress of imprisonment · Durham rule · During · During good behavior · During good pleasure · During life · During minority

During the hours of service · During the trial · Dutch lottery · DUteracy · Duties of detraction · Duty of tonnage · Duty of water · Duty to act · Dwelling · Dwelling defense · Dyer Act · Dying declarations · Dying without children · Dynamite instruction · Dynasty I daynOlstiy I dinOlstiy I · Dysnomy I disnOlmy I · Dyson v

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Eagleton v · Ealhorda I eylhordal · Earldom · Earl Marshal of England · Ear-mark rule · Earn · Earned income · Earned income credit · Earned premium · Earned surplus · Earner · Earnest money · Earning capacity · Earning power · Earnings and profits · Earnings per share · Earnings report · EarUer maturity rule · Ear-witness · Ease · Easement by estoppel · Easement by necessity · Easement by prescription · Easement in gross · Easement of access · Easement of convenience · Easement of natural support · Easement of necessity · Easements · Easter answers · Eastern Agr · Easter Oil Corporation v · Easter term · Eastinus · Eastman formula · Eaves-drip · Eberhard v · Ecclesiastical and lay · Ecclesiastical authorities · Ecclesiastical

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commissioners · Ecclesiastical corporation · Ecclesiastical council · Ecclesiastical Courts · Ecclesiastical division of England · Ecclesiastical jurisdiction · Ecclesiastical law · Ecclesiastical sentence · Ecclesiastical things · Echevin · Ecology · Economic discrimination · Economic obsolescence · Economic strike · Economic waste · Economy · Ecosystems · Ed · Edge lease · EDglesbire ligglashriy I · EdItion · EdItor · Edmunds Act · Edmundson · Educate · Educational expenses · Educational institution · Educational purposes · Educational trusts · Edw · Edward A · Edward I · Edward III · Edward IV · Effecting loan · Effective assistance of counsel · Effective possession · Effective procuring cause · Effect of presumption · Effet · Efficient intervening cause · Effigy I efajiy I · Effort · Efftclent · Ego liygow I · Egyptians · Eighteenth Amendment · Eighth Amendment · Eight hour laws · Eignesse leynesl · Ejectione custodie lajekshiyowniy kastowdiyiy I · Ejectment bill · Elam v · Elder · Elder brethren of the Trinity House · Eldership · Elec · Elected domicile · Election at large · Election board · Election by spouse · Election contest · Election district · Election dower · Election judges · Election of defenses · Election of remedies · Election petitions · Election returns · Elective franchise · Elective office · Elective share · Electoral college · Electoral process · Electors or choosers · Electrical Products Corporation of Oregon v · Electrical Research Products v · Electronic surveillance · Eleemosynary corporation · Eleemosynary defense · Element · Elements of crime · Eleventh Amendment · Elimination · Eliz · Ellerbe v · Elliott v · Ellis v · Eloigned · Emanations · Emancipated minor · Emancipation proclamation · Emblers de gentz lemblarz da jentsl · Embolism I embalizaml · Embolus I embalasl · Embraceor lambreysar I · Embracery · Embracery I ambreysariy I · Emergency · Emergency Court of Appeals · Emergency Court of Appeals of the United States · Emergency doctrine · Emery Industries v · Emery v · EmIgn · Emigrant agent · Emigrant I emagrantl · Emissary I etmseriy I · Emotion · Emp · Emphasizing facts · Empirical · Emplead · Employed · Employees Relief Ass'n v · Employer's liability insurance · Employers' UabWty acts · Employment agency · Employment at uncertain or irregular times · Employment contract · Empower · Enable · EnabUq Act · EnabUq clause · EnabUq power · EnabUq statute · Enacting clause · Enactment · Enactments and initiative and referendum measures · Endeavor · End of month · End of will · Endorsee · Endorsement · Endorser · Endow · Endowment · Endowment insurance · Endowment policy · End Unes · Endurance · Enemy · Enemy alien · Enemy belligerent · Enemy's property · En escbange n covlent que les estates soient egales · Enfeoff limfiyf hmfefl · Enfeoffment lanfiyfmantl · Enforcement · Enforcement of Foreign Judgments Act · Enforcement powers · Enfranchisement of copyholds · Eng · Engage · Engaged in commerce · Engaged in employment · Engagement to marry · Engender · Engineering · Engineering Corporation v · England · England is a science social and comprehensive · England to sit and act as a court of honor · England town in the common lands · English · English acts so entitled · English and American maritime law · English constitution · English courts of law · English ecclesiastical law · English exchequer · English House of Commons appointed by the crown · English house of commons in the time of Henry VIII · English House of Lords · English kings before the Conquest · English law · English mint · English money · English name for policemen · English soldiery · English-speaking lawyer · Engrossed bill · Enherftance · Enjoy · Ennis v · Enoc Arden doctrine · Enright v · Enrolled · Enrolled bill · Enrolled bill rule · Entailed money · Entailment · Entendment · Entering · Entering judgments · Enterprise · Entertainment expenses · Entire act · Entire and severable · Entire balance of my estate · Entire blood · Entire contract · Entire contract clause · Entire day · Entire interest · Entire loss of sight · Entirely without understanding · Entire output contract · Entire tenancy · Entitled to common · Entitlement · Entity · Entity buy and sell agreement · EntIte · Entrance · Entrap · Entrapment · Entreaty · Entries made in the regular course of business · Entrust · Entrusting · Entry · Entry for marriage in speech · Entry in regular course of business · Entry of cause for trial · Entry of judgment · Entry of judgment differs from rendition of judgment · Entry on the roll · Enumerated or express powers · Enumerated powers · Environment · Environmental impact statements · Environmental Policy Act · Environmental Protection Agency · Eotb · EPA · Epps v · E pW ana ley piyliy ana I · Equal and uniform taxation · Equal Credit Opportunity Act · Equal degree · Equal Employment Opportunity Commission · Equalization board · Equalization of taxes · Equalize · Equally divided · Equal Pay Act · Equal protection

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Equitable assignment · Equitable construction · Equitable conversion · Equitable defense · Equitable distribution · Equitable doctrine of approximation · Equitable easements · Equitable ejectment · Equitable election · Equitable estoppel · Equitable Hen · Equitable interest · Equitable levy · Equitable life estate · Equitable mortgage · Equitable or moral considerations · Equitable owner · Equitable ownership · Equitable recoupment · Equitable redemption · Equitable relief · Equitable remedy · Equitable rescission · Equitable restraint doctrine · Equitable reUef · Equitable right · Equitable salvage · Equitable seisin · Equitable servitudes · Equitable title · Equitable Trust Co · Equitable Ufe Assur · Equitable waste · Equity · Equity abhors superfluous things · Equity acts In personam · Equity acts upon the person · Equity courts and law courts · Equity financing · Equity follows the law · Equity jurisdiction · Equity jurisprudence · Equity of a statute · Equity of partners · Equity of redemption · Equity of settlement · Equity pleading · Equity pleading and practice · Equity practice · Equity ratio · Equity security · Equity shares · Equity suffers not a right without a remedy · Equity term · Equity to a settlement · Equivalents doctrine · Erasure of record · Erie R · Erie v · Ernst v · Erroneous assessment · Erroneous judgment · Erroneous or illegal tax · Error apparent of record · Error dwells in general expressions · Error in exercise of jurisdiction · Error in fact · Error in law · Error not presented in brief · Error of fact · Error of law · Error of name · Errors and omissions insurance · Erthmiotum · Escalation clause · Escalator clause · Escape clause · Escape period · Escape warrant · EsConstitution · Escot I askot I · Escriche · Escrow account · Escrow deposit · Eskipper · Espana v · Espionage · Espionage Act · Esplees I aspliyz I · Esq · Essence of the contract · Essential · Essential governmental duties · Establishment clause · EstabUshment · Estate · Estate at will · Estate by entirety · Estate by purchase · Estate by statute staple · Estate by the curtesy · Estate by the entirety · Estate duty · Estate for years · Estate from period to period · Estate from year to year · Estate in common · Estate in fee-tall · Estate in lands · Estate in property which is vested · Estate less than freehold · Estate Licensing Board v · Estate on condition · Estate on conditional limitation · Estate planning · Estates · Estates are also classed as executed or executory · Estates may be either absolute or conditional · Estate subject to a conditional limitation · Estate tax · Estate taxes · Estate trust · Estate upon condition expressed · Estate upon condition Implied · Est enim obligatio quasi contraJigatio · Estill County v · Estimated tax · Estimated useful life · EstIn doctrine · Estoppel by deed · Estoppel by judgment · Estoppel certificate · Estoppel in pais · Estoppels distinguished · Et al · Et allocatur led zlakeydarI · Et de ceo se mettent en Ie pays · Eteenpain Co-op · Eternal security · Ethics · Et seq · Et uxor · Euclidean zoning · EucUdlan · Eundo et redeundo liyandow et rediyandow I · Europe · Euthanasia · Evarts Act · Evasive answer · Eve · Even · Evening · Evergreen contract · Every action is a plaint o r complaint · Every greater embraces in itself the less · Every other thing · Evesdroppers · Evid · Evidence · Evidence aliunde · Evidence and proof distinguished · Evidence by inspection · Evidence codes · Evidence completed · Evidence of insurability satisfactory to company · Evidence reasonably tending to support verdict · Evidence rules · Evidence to support findings · Evident · Evidentiary fact · Evidently · Evil advice or counsel · Evolution statute · Exactly the same for all practical purposes · Examination de bene esse · Examination of title · Examination pro interesse suo · Examined copy · Examiners v · Examining board · Examining court · Examining trial · Example of presumptions · Excellency · Except · Excepting · Exceptional circumstances · Exception and proviso distinguished · Exceptions and limitations · Except right of way · Excess clause · Excess condemnation · Excess insurance · Excessive assessment · Excessive ball · Excessive damages · Excessive drunkenness · Excessive fine or penalty · Excessive force · Excessive greed or desire for wealth or gain · Excessive interest · Excessively · Excessively intoxicated · Excessive punishment · Excessive speed · Excessive verdict · Excessivum in jure reprobatur · Excess jurisdiction · Excess liability damages · Excess of assets over liabilities · Excess of jurisdiction · Excess or surplus water · Excess pollcy · Excess polley · Excess profits tax · Exchange Act · Exchange broker · Exchange Nat · Exchange offer ·

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Exchange of stock · Exchange rate · Exchange v · Exchequer bills · Exchequer division · Excise Heu property tax · Excise tax · Excited utterance · Exclusion · Exclusionary Rule · Exclusionary zoning · Exclusive agency · Exclusive agency listing · Exclusive agent · Exclusive and concurrent jurisdiction · Exclusive contract · Exclusive control · Exclusive dealing arrangements · Exclusive franchise · Exclusive jurisdiction · Exclusive license · Exclusive licensee · Exclusive listing · Exclusively · Exclusively used · Exclusive ownership · Exclusive possession · Exclusive right · Exclusive right to sell · Exclusive use · Ex continenti leks kontiniyentay I · Exculpatory clause · Exculpatory evidence · Exculpatory statement · Excusable assault · Excusable homicide · Excusable neglect · Ex delicto trusts · Ex dividend · Executecl · Executed agreements · Executed and executory sales · Executed contract · Executed estate · Executed fine · Executed gift · Executed license · Executed note · Executed oral agreement · Executed or executory · Executed or executory considerations · Executed remainder · Executed sale · Executed trust · Executed use · Execution creditor · Execution Den · Execution of instrument · Execution of judgment · Execution of judgment or decree · Execution paree I ekseykyuwsyown parey I · Execution sale · Executive agency · Executive agreement · Executive capacity · Executive clemency · Executive committee · Executive Council · Executive department · Executive employees · Executive officer · Executive order · Executive order Indian reservation · Executive pardon · Executive powers · Executive privilege · Executive session · Executor a lege constitutus · Executor a testatore constitutus · Executor by substitution · Executor creditor

Executor dative · Executor de son tort · Executorship · Executory accord · Executory agreements · Executory bequest · Executory consideration · Executory contract · Executory devise · Executory interests · Executory license · Executory limitation · Executory process · Executory remainder · Executory sale · Executory trust · Executory unilateral accord · Executory uses · Executory warranties · Exemplary or punitive damages · Exemplified copy · Exempt · Exempted from the payment of tithes · Exempted security · Exemption laws · Exempt securities · Exempt transactions · Exercised dominion · Exercise of judgment · Exeter Academy V · Ex facto leks frektow I · Ex gratia payment · Exhaustion of state remedies · Exhibitionism · Exhibition value · Exigency of a bond · Exigency of a writ · Exigent · Exigent circumstances · Exigent list · Exigent search · Exile I egzayll eksayll · Ex-interest · Existing claim · Existing debt · Existing in possibility but not in act · Existing person · Ex mutuo leks myliwchuwowl · Ex officio justices · Exolne · Exorbitant I agzorbadantl · Ex parte divorce · Ex parte hearing · Ex parte injunction · Ex parte investigation · Ex parte leks pardiy I · Ex Parte proceeding · Ex parte revocation · Expatriation I ekspeytriyeyshanl · Expectancy · Expectancy damages · Expectancy of life · Expectancy tables · Expectant estates · Expectant heir I akspekbnt er I · Expectant right · Expectation of ute · Expedient · Expediente lekspeymyentey I · Expedite · Expedition · Expend · Expendable · Expenditure · Expenditure for long term betterments or additions · Expense · Expense in carrying on business · Expense ratio · Expenses of adminfstration · Expenses of famlly · Expenses of receivership · Expenses of the state · Expenses or gifts · Experience · Experience by various acts makes law · Experience rating · Experientia per varios actus legem facit · Expert · Expert evidence · Expert testimony · Expert witness · Expire · Export declaration · Export-Import Bank · Export letter · Export quotas · Exports clause · Export tax · Exposure of child · Express abrogation · Express active trust · Express agreements · Express amnesty is one granted in direct terms · Express and implied · Express assent · Express assumpsit · Express authority · Express color · Express common-law dedication · Express company · Express conditions · Express consent · Express contract · Express dissatisfaction · Expressed · Express license · Expressly · Express malice · Express notice · Express or actual malice · Express or implied · Express or implied consent · Express or implied considerations · Express or implied obligation · Express permission · Express private passive trust · Express private trust · Express repeal · Express republication · Express request · Express terms · Express trust · Express waiver · Express wan-anty · Express warranty · Ex-prisoner who has been placed on parole · Ex proprio motu leks prowpriyow mowduw I · ExpUcit · Expungement of record · Ex'r v · Ex ship · Ex statuto leks sbchuwdow I · Extended · Extended coverage clause · Extended insurance · Extended policy · Extended term insurance · Extension agreements · Extension of land jutting

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out into water as a peninsula · Extension or renewal of note · Extensive · Extent in aid · Extent in chief · Extent of such payment · Extent of trespasser's liability for harm · Extenuation · Exterior · External · ExterritoriaHty · Ex testamento leks tesbmentow I · Extinguish · Extinguishment of common · Extinguishment of copyhold · Extinguishment of debts · Extinguishment of legacy · Extinguishment of lien · Extinguishment of rent · Extinguishment of ways · Extortionate credit · Extra allowance · Extra-clotal property · Extracts · Extra dividend · ExtraIateral right · Extrajudicial evidence · Extrajudicial oath · Extrajudicial statement · Extranational · Extraneous evidence · Extraneous offense · Extraneous questions · Extraordinary average · Extraordinary care · Extraordinary circumstances · Extraordinary danger · Extraordinary diligence · Extraordinary dividend · Extraordinary expenses · Extraordinary flood · Extraordinary grand jury · Extraordinary hazard · Extraordinary remedies · Extraordinary remedy · Extraordinary repairs · Extraordinary risk · Extraordinary session · Extraordinary storm · Extraordinary writs · Extrapolation · Extra session · Extraterritorial · Extra-Territorial Arrest on Fresh Pursuit Act · Extraterritorial jurisdiction · Extra work · Extreme · Extreme case · Extreme low tide · Extreme physical pain or mental distress · Extremity · Extrinsic ambiguity · Extrinsic evidence · Extrinsic fraud · Ex una parte leks yliwna pardiy I · Ex utraque parte leks yuwtreykwiy pardiy I · Ex voluntate leks volanteydiy I · Ex warrants · Eyde I eydl · Eyewitness Identification

# F

Fabricated evidence · Fabricated fact · Face amount · Face amount insured by the policy · Face of Instrument · Face of judgment · Face of policy · Face of record · Face value · Facial disfigurement · Facie · Facilitate · Facilitation · Facio ut facias · Fackler v · Facsimile signature · Facta IfzktM · Fact and law distinguished · Fact finding board · Fact material to risk · Facto Ifzktow I · Factor · Factoring · Factorizing process · Factors' acts · Factor's Ben · Factory acts · Factory prices · Fact question · Facts · Facts incomplete · Facts in issue · Facts well pleaded · FacUlty of payment clause · Fade the game · Faggot vote · Failing circumstances · Failure of consideration · Failure of evidence · Failure of good behavior · Failure of issue · Failure of justice · Failure of proof · Failure of record · Failure of title · Failure of trust · Failure otherwise than upon merits · Failures in revenue · Failure to bargain collectively · Failure to make delivery · Failure to meet obligations · Failure to perform · Failure to re-employ striking employees · Failure to remove thing tortiously placed on land · Failure to state cause of action · Failure to testify · Fair · Fair and impartial jury · Fair and impartial trial · Fair and proper legal assessment · Fair and reasonable value · Fair and valuable consideration · Fair averaging · Fair bearing · Fair cash market value · Fair cash value · Fair comment · Fair competition · Fair consideration · Fair Credit DUling Act · Fair Credit Reporting Act · Fair Credit Reporting Acts · Fair equivalent · Fairfield v · Fair knowledge or skUl · Fair Labor Standards Act · Fair market price · Fair market value · Fairness or equal time doctrine · Fair on its face · Fair or reasonable knowledge of · Fair persuasion · Fair play · Fair pleader · Fair preponderance of evidence · Fair rent · Fair return · Fair return on Investment · Fair sale · Fair trade laws · Fair trial · Fair usage · Fair use doctrine · Fair value · Fair value method · Fait accompli · Faith · Faith and the Larger and Shorter Catechisms · Faithful · Faitours Ifeytarzl · Faker · Fakir Ifeykir Ifeykar I · Falcarious · Faldworth · Falk-Iand · Fallopian tube · Fallum · Falsare Ifolseriy I · False action · False and fraudulent · False answer · False arrest · False character · False checks · False claim · False decretals · False demonstration · False entry · False fact · False impersonation · False imprisonment · False imprisonment action · False instrument · False judgment · False Latin · False lights and signals · Falsely · Falsely make · False making · False news · False oath · False or misleading labeling · False personation · False plea · False pretenses · False pretenses and larceny distinguished · False representation · False return · False statement · False swearing · False token · False verdict · False weights · False writing · Falsity · Fama IfeymM · Famillar · Family allowance · Family arrangement · Family automobDe doctrine · Family Bible · Family car doctrine · Family councD · Family court · Family disturbance · Family expense statutes · Family group · Family income insurance · Family law · Family meeting · Family partnership ·

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Family physician · Family purpose doctrine · Family service rule · Family settlement · Famlliarity · Famosus I fOlmowsOls I · Fanatic · Fanciful trade-name · Fannie Mae · Fare · Farm Credit Administration · Farm crossing · Farmer · Farmers and Merchants State Bank v · Farmer's cooperative · Farmers Mut · Farmers Peanut Co · Farmers' Trust Co · Farming business · Farming operation · Farming products · Farming purposes · Farm labor or laborer · Farm out · Farmout agreement · Farm products · Farm-to-market roads · Farr v · Farthing of gold · Farthing of land · Farvand · Fast bill of exceptions · Fasulo v · Fatal defect · Fatal errors · Fatal injury · Fatal variance · Father-in-law · Father of the country · Fauces terre Ifosiyz tehriy I · Fauntleroy doctrine · Faux Ifow I · Favored beneficiary · Favored nation · Favoritism · Fay v · Feasible · Featherbedding · Fed · Federal · Federal Act · Federal Acts · Federal Aviation Administration · Federal Bureau of Investigation · Federal census · Federal citizenship · Federal common law · Federal Communications Commission · Federal courts · Federal crimes · Federal criminal cases · Federal Deposit Ins · Federal Deposit Insurance Corporation · Federal Employees' Compensation Act · Federal Employers' Liability Act · Federal Employer's Uability Act · Federal estate tax for testamentary transfers · Federal government · Federal Grand Jury · Federal Hall in New York City · Federal Home Loan Bank · Federal Home Loan Bank Board · Federal Home Loan Banks · Federal Home Loan Mortgage Corporation · Federal Housing Administration · Federal instrumentality · Federal Insurance Contributions Act · Federalism · Federalist Papers · Federal Judicial Code · Federal jurisdiction · Federal land bank · Federal Land Bank of Baltimore v · Federal Land Banks · Federal laws · Federal Maritime Commission · Federal Mediation and Conciliation Service · Federal Mediation and ConcUiation Service · Federal National Mortgage Association · Federal officer · Federal Power Commission · Federal pre-emption · Federal question · Federal Register · Federal regulations · Federal Reporter · Federal Reserve · Federal Reserve Act · Federal reserve bank · Federal Reserve Banks · Federal Reserve Board of Governors · Federal reserve notes · Federal Reserve System · Federal Rules · Federal Rules Act · Federal Rules Decisions · Federal Rules of Appellate Procedure · Federal Rules of Civil Procedure · Federal Rules of Civil Procedure applicable · Federal Rules of Criminal Procedure · Federal Rules of Evidence · Federal Sav · Federal Savings and Loan Insurance Corporation · Federal statutes · Federal Supplement · Federal tax lien · Federal Tort Claims Act · Federal Trade Commission · Federal Underwriters Exchange v · Federation · Federation of Teachers v · Fee · Fee damages · Feeder lines · Fee expectant · Fee-farm rent · Fee simple defeasible · Fee simple title · Fee tail · Feigned accomplice · Feigned action · Feigned diseases · Feigned issue · FELA · FELA actions · Fellow servant rule · Felo de se I felow diy siy I · Felonious assault · Felonious entry

Felonious homicide · Felonious intent · Felonious taking · Felony murder doctrine · Female child · Female executor · Female offspring · Femigo · Fence county · Fencing patents · Feoffee to uses · Feoh lfiy I · Feorme Ifarml · Ferae naturae lfiriy nachiiriy I · Ferdfare · Ferdwite · Fermentation · Ferrator · Ferri Ifehray I · Ferry franchise · Ferryman · Festing-man · Festing-penny · Festorazzi v · Festuca · Festuca IfestyUwkM · Fetal death · Fettering · Fetus I fiydQS I · Feudal actions · Feudal courts · Feudal law · Feudal possession · Feudal system · Feudal tenures · Feudbote Ifyuwdbowtl · Feuds · Feuds or fees · Fevresham · FHA · FHA mortgage · FHLB · FHLBB · FHLMC · Fiat money · Fiaunt I fayontl · FICA · Fiction of law · Fictitious action · Fictitious name · Fictitious payee · Fictitious person · Fictitious plaintiff · Fictitious promise · Fidelitas · Fidelity and guaranty insurance · Fidelity-Bankers Trust Co · Fidelity bond · Fidelity insurance · Fidelity or fealty · Fides I faydiyz I · Fiduciary bond · Fiduciary capacity · Fiduciary contract · Fiduciary debt · Fiduciary heir · Fiduciary or confidential relation · Field a udit · Field book · Field Code · Field DoteS · Field hospital · Field office · Field vision · Field warehousing · Field work · FIFO · Fifteenth Amendment · Fifth Amendment · Fifth degree of kinship · Fifty decisions · Fighting words · Fightwite · Figures · Filed · File wrapper estoppel · Filing officer · Filing with court · Final architect's certificate · Final award · Final costs · Final decision · Final decision rule · Final decree · Final determination · Final disposition · Final hearing · Finality rule · Final judgment · Final judgment rule · Final order · Final passage · Final process · Final receiver'S receipt · Final recovery · Final sentence · Final settlement · Final submission · Finance · Finance charge · Finance committee · Financial ·

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Financial institutions · Financial interest · Financially able · Financial reports · Financial responsibility acts · Financial responsiblllty · Financial statement · Financial worth · Financing agency · Financing statement · Finder's fee · Finding of fact · Finding of law · Fine and recovery act · Fine for alienation · Fine rolls · Fine V · Fingerprints · Finley v · Finnegan Constr · Fipps V · Firearm · Firearms Acts · Firebug · Fire district · Fire Ins · Fire insurance · Fireman's Fund Ins · Fire marshal or warden · Fire ordeal · Fire sale · Firm · Firm bid · Firmly · Firm name · Firm offer · First Amendment · First blush · First-class misdemeanant · First-class title · First cousins · First degree murder · First fruits · First heir · First impression case · First lien · First meeting · First meeting of creditors · First mortgage · First mortgage bonds · First Nat · First Natl · First notary · First of exchange · First offender · First party insurance · First policy year · First purchaser · First return · First sale rule · First vested estate · Fiscal agent · Fiscal court · Fiscal judge · Fiscal officers · Fiscal period · Fiscal year · Fish Commissioner · Fishing trip or expedition · Fish royal · Fit and appropriate for the end in view · Fitness for particular purpose · Fitzsimmons v · FiUation proceeding · FiUbuster · FiUng · Fixed · Fixed assets · Fixed bail · Fixed capital · Fixed charges · Fixed costs · Fixed debt · Fixed expenses · Fixed fee · Fixed income · Fixed Indebtedness · Fixed liabilities · Fixed liability · Fixed opinion · Fixed price contract · Fixed prices · Fixed salary · Fixed sentence · Fixed trust · Fixture · Fixture Co · Fla · Flaco · Flag · Flag desecration · Flag of convenience · Flag of the United States · Flag of truce · Flagrant dellt Iflagron deyliy I · Flanders v · Flat bond · Flat money · Flat rate · Flattery · Flctlo cedlt veritatl · Fleckner v · Fleet policy · Fleet policy insurance · Flel lfiyeyll · Flexible participation bank night · Flexible participation scheme · Flight from justice · Flim-nam · Flipping · Floatage · Floater insurance · Floater policy · Floating charge · Floating easement · Floating interest rate · Floating lien · Floating or Circulating capital · Floating policy · Floating stock · Floating zone · Flode-mark · Flogging · Flood · Flood Control Dist · Flood water · Flood waters · Floored · Flooring v · Floor plan financing · Floor plan rule · Floor tax · Floor trader · Flotsam · Floud-marke · Flowage · Flower bond · Flow through method · FLSA · Fluctuating clause · Flume · Fly for it · Flying Service V · Fly-power · FMC · FMCS · FMW · FOIA · Folden v · Fold-soke · Folgarii IfalgeriyayI · Folgoth · Folio · Followers of an army · Fonds de commerce · Fonds et biens · Food and Drug Administration · Food for horses or cattle · Food Stores v · Foods v · Foot · Foot acre · Foot-frontage rule · Foot pound · For account of · For and against · For a term that has passed · For a term which has passed · Forathe · Forbes v · For cause · Force and arms · Force and fear · Forced sale · Forcible · Forcible felony · Forcible inducement to the commission of an act · Forcible rape

Forcible trespass · For collection · Fordanno I forruenow I · For defect or want of Nstice · For dividing a thing held in common · Ford's Adm'r v · Ford v · Foreclose IforklowzI · Foreclosure decree · Foreclosure sale · Forehand rent · Foreign administration · Foreign agent · Foreign answer · Foreign assignment · Foreign bill of exchange · Foreign coins · Foreign commerce · Foreign consulate · Foreign county · Foreign courts · Foreign creditor · Foreign diplomatic or consular offices · Foreign divorce · Foreign document · Foreign domicile · Foreign dominion · Foreign exchange · Foreign exchange rate · Foreign fiduciary · Foreign government · Foreign immunity · Foreign judgment · Foreign jurisdiction · Foreign jury · Foreign laws · Foreign minister · Foreign money · Foreign personal representative · Foreign port · Foreign proceeding · Foreign receiver · Foreign representative · Foreign service · Foreign service of process · Foreign situs trust · Foreign state · Foreign states · Foreign substance · Foreign tax credit · Foreign tax credit or deduction · Foreign trade · Foreign trade zone · Foreign trust · Foreign vessel · Foreign voyage · Foreign waters · Foreign will · Forejudger · Foreman or foreperson · Forename · Forensic medicine · Forensic pathology · Forensic psychiatry · Foreseeability · Foresight · Forestaller · Forestalling · Forest courts · Forester · Forest law · Fore v · Forever · Forfeited · Forfeiture · Forfeiture of bond · Forfeiture of marriage · Forfeitures Abolition Act · Forgiveness or condonation of an offense or injury · For hire or reward · ForInexcusable neglect · Forisfactura I forQsfrekchurQ I · Forisfamiliare I forQsfQmiliyeriy I · Forisfamiliatus I forQsfQmiliyeydQs I · Foris I fams I · Forisjudicatus I forQsjuwdQkeydQs I · Forisjurare I forQsjQreriy I · Forjurer royalme · Form · Formal contract · Formal parties · Formal words in the old writs for summoning juries · Formal words in the

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praetorian edicts · Formal writs issuing as of course · Form and content of summons · Former adjudication · Former jeopardy · Former proceedings · Former recovery · Former statements · Former testimony · Form gives being · Form of action · Form of the statute · Forms of action · Formula deal · Fornagium I forneyjiyam I · For others · For purpose of · For restoring charters · For restoring chattels · Forschel · Forsworn · Fortaxed Ifortrekstl · For that · For that whereas · For the admitting of the clerk · For the benefit or advantage of another · For the whole · For this reason · FortUity I fortiladiy I · Fortune teller · Forum shopping · For use · For use of money · For value · For value received · Forward · Forwarder · Forwarding agent · For whom it may concern · Foster child · Foster home · Fosterland · Foster parent · Foster v · Foul bill · Foul bUl of lading · Found · Founded on · Founders' shares · Foundling hospitals · Foundries v · Fourcher Ifurshey I · Four comers · Four comers rule · Fourteenth Amendment · Fourth Amendment · Fourth estate · Foust v · Fox v · Fractional share · Fractional share formula · Fraction of a day · Frais jfrey I · Framed · Frame-up · France · France and Italy · France for the maintenance of their younger sons · Franchise appurtenant to land · Franchise clause · Franchised dealer · Franchise tax · Francisco v · Francis Wharton · Frank bank · Frank-chase · Frank-fee · Frank ferm · Frank-fold · Frank-law · Frank-marriage · Frank-pledge · Franks · Frank-tenant · Frank-tenement · Frank v · Fraternal benefit association or society · Fraternal insurance · Fraternal lodge · Fraudare Ifroderiy I · Fraud in fact or in law · Fraud in the inducement · Fraud lies hid in general expressions · Fraud order · Fraud should be proved by clear tokens · Fraudulent alienation · Fraudulent banking · Fraudulent claims · Fraudulent concealment · Fraudulent conversion · Fraudulent conveyance · Fraudulent debt · Fraudulent intent · Fraudulent or dishonest act · Fraudulent preferences · Fraudulent sale · Fraudulent transfers · Fray I frey I · Freddie Mac · Fredum I friydam I · Free · Free alms · Free alongside · Free and clear · Free and equal · Free-bench · Free-bord · Free chapel · Free course · Freedom of association · Freedom of choice · Freedom of expression · Freedom of infonnation Act · Freedom of Information Act · Freedom of press · Freedom of reUgion · Freedom of speech · Freedom of the city · Free election · Free enterprise · Free exercise clause · Free fishery · Freeholder · Freehold land societies · Free ice · Free law · Freeman's roll · Freeman v · Free men · Free port · Free press · Free service · Free services · Free shareholders · Free ships · Free socage · Free socmen · Free tenure · Free tenure by socage · Free time · Free trade zone · Free warren · Freeze-out · Freight booking · Freight forwarder · Freight Lines v · Freight mile · Freight rate · Freight then pending · French · French-Canadian law · French colonies · French law · French nationality is established · French pool · French v · Frendwite I frendwayt I · Freoborgh I friyborg I · Frere I frer I · Fresh complaint rule · Fresh fine · Fresh pursuit · Fresh start adjustment · Fresh suit · Freteur I freytyur I · Friedlander v · Friend · Friendly fire · Fringe benefits · Frisk · Frivolous answer · Frivolous appeal · Frivolous defense · Frohmiller v · From · From cancelling · From day to day · From Latin word genus · From one place to another · From one thing you can discern all · From or out of loan · From person · From the bowels · From the chair · From the date · From the provision o f the husband · From time to time · From without · From writings formerly seen · Front · Frontage · Front foot · Front-foot rule · Fronting and abutting · Front wages · Frost-Johnson Lumber Co · Frost Lumber Industries v · Frozen account

Frozen assets · Frozen snake · Fructus rei aliene Ifrikbs riyay zliyiyniy I · Fruges I frujiyz I · Fruit and the tree doctrine · Fruit fallen · Fruit of poisonous tree doctrine · Fruits of crime · Frustration of contract · Frustration of purpose doctrine · Fuage · FUare I faleriy I · FUe · FUed · Fuero Ifwerow I · Fuero municipal Ifwerow muwniysiypall · Fugator Ifyageydar I · Fugitive Felon Act · Fugitive from justice · Fugitive's goods · Fugitive slave law · Fugue I fyuwg I · Full age · Full answer · Full blood · Full cash value · Full copy · Full court · Full cousin · Full covenants · Full coverage · Full crew laws · Full defense · Fuller v · Full faith and credit clause · Full hearing · Full indorsement · Full jurisdiction · Full name · Full or general partner · Full pardon · Full powers · Full proof · Full right · Full settlement · Full Ufe · Full value · Full warranty · Fulton Nat · Fulton v · Functional claim · Functional depreciation · Functional obsolescence · Fund · Fundamental fairness doctrine · Fundamental rights · Funded · Funded debt · Funded pension plan · Fund for City of Tulsa v · Funding · Funding system · Fund Ins · Funds or stocks · Fund v · Fungible goods · Fungibles · Fur Ifar I · Furius Camillus

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and C · Furlong · Furlough Ifarlow I · Furnishing of living quarters to military personnel · Furniture · Furniture Co · Furst and fondung · Furst v · Further advance · Further instructions · Furtive Ifardav I · Fuse plug levees · Fust · FUthy · Future acquired property · Future advance clause · Future advances · Future damages · Future earnings · Future goods · Future interests · Future performance · Futures contract · Futures trading · Fynderinga

## G

Ga · GAAP · GAAS · Gabrielli v · Gadsden Purchase · Gag order · Gain · Gainblbig device · Gainful · Gainful employment or occupation · GAIT · Gallagher agreement · Gallagher Bros · Galveston v · Gambler · Gambling · Gambling place · Gambling policy · Game · Game-keeper · Game laws · Game of chance · Gaming contracts · Gaming device · Gaming Devices Seized at American Legion Post No · Gaming house · Gananciales I ganansiyaleysl · Ganancial property · Gang · Gangi v · Gangster · GAO · Garbler of spices · Garment Co · Garmon v · Garner v · Garrett v · Gas Co · Gas Improvement Co · Gasoline tax · Gasperino v · Gasper v · Gas sold · Gas used · Gatewood v · Gavelbred · Gavelcester · Gavelherte · Gaveling men · Gavel-man · Gdn · Gehrung v · Gelt · Generai executor · General Acc · General Accounting Office · General administration · General agency · General agency business · General agent · General Agreement on Tariffs and Trade · General and beneficial owner · General and special · General and special insurance · General and special powers · General and special powers in trust · General and specific · General appearance · General Assembly · General Assembly to petition for such opinion · General assignment · General assignment for benefit of creditors · General authority · General Automotive Mfg · General average · General average bond · General average contribution · General average loss · General average statement · General benefits · General bequest · General building scheme · General challenge · General charge · General circulation · General contractor · General count · General Court · General court martial · General credit · General creditor · General damages · General debt · General demurrer · General denial · General election · General estate · General exception · General execution · General fee conditional · General field · General Finance Corp · General fund · General improvement · General IncloSure Act · General indorsement · General Ins · General intangibles · General intent · General interest · General jurisdiction · General Land Office · General law · General legacy · General lien · Generally accepted accounting principles · Generally Accepted Auditing Standards · Generally a place of business or residence · General manager · General monition · General mortgage · General mortgage bond · General obligation bonds · General occupant · General of the Anny or Five Star General · General orders · General or specific · General owner · General pardon · General partner · General partnership · General plea · General power of appointment · General property · General reprisals · General reputation · General revenue fund · General Scott during the Mexican war · General Services Administration · General ship · General statute · General strike · General taxes · General tenancy · General term · General traverse · General usage · General verdict · General verdict with interrogatories · General warrant · General warranty · General welfare · General welfare clause · General words · Generation-skipping tax · Generation-skipping trust · Generic · Generic name · Geneva Convention · Gentes Ijentiyzi · Gentlemen's agreement · Genuine issue · Geo · Geographic market · George F · George J · Georgia · Georgia Ass'n of Independent Ins · Gerefa IgQriyfQI · Germ · Germans · Gest · Gesture · Get · Ghormley v · Gibbet law · Gideon v · Gift deed · Gift enterprise · Gift in contemplation of death · Gift in trust · Gift over · Gift splitting · Gifts to Minors Act · Gift tax · Gift to a class · Gild-hall · Gildo I gildow I · Gild-rent · Gill · Gillikin v · Gilmore Co · Gilmore v · Gilt edge · Ginnie Mae · Girante Ijirantey I · Gist Ijistl · Give · Give and bequeath · Give color · Give judgment · Give notice · Give time · Give way · Giving the reason of his knowledge · Gleaning · Glenn v · Gliscywa · Glocksen v · GNP · Go bail · GOd · Go fifty-fifty · Go hence · Going and coming rule · Going before the wind · Going concern · Going concern value · Going into effect of act · Going off large · Going price · Going private · Going public · Going through the bar · Going to the country · Going value · Going witness · Gold and silver intended to be coined · Gold bond · Gold clause · Golden Rule argument ·

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Gold standard · Goldstein v · Goldston v · Good · Good abearing · Good and valid · Good and workmanlike manner · Good behavior · Good cause · Good character · Good conduct · Good consideration · Good faith · Good faith purchaser · Good health · Good jury · Good order · Good record title · Good repute · Good Samaritan doctrine · Goods and chattels · Goods originally grown · Goods sold and delivered · Goods sold at a distressed sale · Goods which · Goodtime allowance · Good title · Good will · Good will is an intangible asset · Gordon v · Goslin V · Go to · Go to protest · Gounares Bros · Govern · Governing body · Governmental · Governmental activity · Governmental agency · Governmental agents · Governmental body · Governmental duties · Governmental enterprise · Governmental facility · Governmental functions · Governmental immunity · Governmental instrumentality · Governmental interests · Governmental powers · Governmental privileges · Governmental purpose · Governmental secrets · Governmental subdivision · Governmental survey · Governmental tort immunity · Governmental trusts · Government annuities societies · Government bond · Government bonds · Government by the multitude · Government contract · Government de facto · Government Immunity · Government instrumentality doctrine · Government insurance · Government National Mortgage Association · Government of laws · Government Printing Office · Government security

Government's immunity from land taxes · Government survey system · Government tort · Go without day · GPO · Grace period · Grade crossing · Graded offense · Grade of official standing · Graduate · Graduated lease · Graduated tax · Grain rent · Grains and leguminous vegetables · Gralnage · Grand assize · Grand bill of sale · Grand Coutumier · Grand days · Grandfather clause · Grand jury · Grand jury investigation · Grand jury witness · Grand larceny · Granger Cases · Grant and to freight let · Granting clause · Grant of patent · Grant of personal property · Grantor-grantee index · Grantor's lien · Grantor trust · Grantor trusts · Grant to uses · Grass · Gratian · Gratuitous allowance · Gratuitous and onerous · Gratuitous bailee · Gratuitous bailment · Gratuitous consideration · Gratuitous deed · Gratuitous guest · Gratuitous licensee · Gratuitous passenger · Gratuitous promise · Gratuity · Graven dock · Graveyard insurance · Gray v · Great bodily injury · Great charter · Great council · Great diligence · Greater or larger · Greater than what is usual or proper · Great fee · Great-grandchildren · Great ponds · Great seal · Great tithes · Great writ of liberty · Greek cross · Greek jurists · Greek Sophists · Greek word · Greek words signifying the hand and work · Green River ordinance · Gregorianus · Gregory v · Grempler v · Greva I griyvM · Grievance · Grievous · Grimes v · Grooms v · Gross adventure · Gross aUmony · Gross average · Gross charter · Gross earnings · Grosse aventure I grows avontyur I · Gross estate · Gross income · Gross income multiplier · Gross income tax · Gross interest · Gross lease · Gross margin · Gross misdemeanor · Gross neglect of duty · Gross negligence · Gross premium · Gross profit · Gross receipts · Gross receipts tax · Gross revenue · Gross sale · Gross sales · Gross spread · Gross stress reaction · Gross up · Gross weight · Ground · Ground for divorce · Ground for new trial · Ground landlord · Ground lease · Ground of action · Ground rent · Ground water · Ground writ · Group annuity · Group annuity contract · Group boycott · Grouped into classes · Grouping of contacts · Group insurance · Group libel · Group life insurance · Group of people born and living contemporaneously · Group-term life insurance · Groves v · Growers v · Growth stock · Gruarii I gruweriyay I · Guarantee clause · Guaranteed bond · Guaranteed payment · Guaranteed stock · Guarantee stock · Guarantor and surety compared · Guaranty bond · Guaranty clause · Guaranty company · Guaranty fund · Guaranty insurance · Guaranty or fidelity insurance · Guaranty stock · Guardian in chivalry · Guardian in socage · Guardian of the poor · Guarentigio I garentiyhiyow I · Guastald · Guest statute · Guildhall · Guildhall sittings · Guild rents · Guillotine I gilatiyn I giyatiyn I · Guillot v · Guilt makes equal those whom it stains · Guilty plea · Guilty verdict · Guinea I giniy I · Gulf Refining Co · Gumbart v · Gun · Gynecocracy

## H

Haas v · Habeas corpus acts · HabitabiHty · Habitual · Habitual drunkenness or intoxication · Habitually · Had

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· Hadd · Hagnebut IhzkbatlhzgO I · Hail insurance · Hakhdar I hakdar I · Halakar I halakar I · Half-blood · Half cent · Half defense · Half dollar · Half eagle · Half-mark · Half nephew or half niece · Half pilotage · Half-proof · Half-seal · Half section · Half-timer · Half-tongue · Halfway house · Half year · Hallmark · Hallucinogenic drug · Hall v · Halt dime · Halved notes · Ham · Hammel v · Hammond v · Hampton v · Hancock Mut · Hancock v · Hand · Handborow · Handcuffs · Hand down · Hand-gritb · Handle · Hand money · Handwriting exemplars · Handy v · Hanging in chains · Hankins v · Hanover Fire Ins · Haole Ihawliy I · Hap · Harassment · Harastej v · Harbison v · Harbor One · Harbour v · Hard cases · Hard goods · Hardware Mut · Harm · Harmful · Harmful error · Harmonic plane · Harmonize · Harmony · Harrison v · Harris v · Harter Act · Hartford Electric Light Co · Hartman v · Hart v · Harvesting · Hashish · Hassayator regis · Hastings Mfg · Hastings v · Hatch Act · Hatred or ill-will · Haula · Have and hold · Have or take your effects to yourself · Having in hand · Having or possessing life · Having or possessing physical form · Having the nature or guilt of treason · Having use and control of one's mental faculties · Hawaiian · Hawking · Hawk v · Hayden v · Hayward v · Hazard · Hazardous contract · Hazardous employment · Hazardous insurance · Hazardous negligence · Hazar-zamin · Head money · Head of family or household · Head of stream · Headright · Head-sllver · Headstream · Head tax · Healer · Healing act · Health Administration · Health insurance · Health laws · Health officer · Healthy · Hearing examiner · Hearing officer · Hearl balm statutes · Hearsay · Heart Academy of Galveston v · Hearth money · Hebdomad Ihebdamred I · Hebote · Heda · H e defends the force and injury · Hedging · Heedless · He gives nothing who has nothing · He has nothing · He has rendered himself · Heien v · Heir apparent · Heir at law · Heir beneficiary · Heir by adoption · Heir by custom · Heir by devise · Heir collateral · Heir conventional · Heirdom Ierdam I · Heir expectant · Heir general · Heir hunter · Heir Ier I · Heirless estate · Heir of the blood · Heir of the body · Heir presumptive · Heirs and assigns · Heir special · Heirs per stirpes · Heir testamentary · Heir unconditional · He is last whom no one follows · He is liable as a common carrier · He is ready to verify · Held · Held by feudal service · Held to mean the same with consideratum est · Helsing · Helvering V · Hen · Henfare · Hennebont Co · Henry III · Henry v · He of whom lands or tenements are holden · He owes nothing · Hepburn Act · Heptarchy Iheptarkiy I · Heralds' College · Herebote Iherbowtl · Hereditary right to the croWD · Hereditary succession · Hereford · Heres I hiriyz I · Hereunder · Hermandad Iermandad I · Hermann v · Hermogenianus · Hernandez v · Heroin · Hershey v · Hertz v · He says nothing · He that keeps the county court · He that oweth allegiance · He took · He to whom a fee is conveyed · He to whom one is bound in a recogniRecognizor · Hettrick Mfg · HEW · He who acts badly hates the light · H e who affirms must prove · He who confirms does not give · He who does anything for me appears to do it to me · He who enters into a recognizance · He who has committed iniquity shall not have equity · He who hath not cannot give · He who holds a church living or preferment in commendam · He who is first in time is preferred in right · H e who mistakes does not consent · He who says all excepts nothing · He who says all excludes nothing · He who seeks equity must do equity · Hicks v · Hidden asset · Hidden defect · High and low water-mark · High bailiff · High Commission Court · High Court of Admiralty · High Court of Delegates · High Court of Errors and Appeals · High Court of Parliament · High degree of care and dUigence · High degree of negligence · High diligence · Higher and lower scale · Higher Education of City of N · Highest and best use · Highest degree of care · Highest proved value · Highlanders v · High managerial agent · High probability rule · High School Dist · High seas · High treason · High water line or mark · High-water mark · Highway Commission v · Highway crossing · Highway-rate · Highway robbery · Highway tax · Highway toll · Hijacking · Hillard V · Hillis v · Hilton v · Hinder · Hiring · Hiring at will · Hiring hall · His · His superior or master shall answer · Historic bay · Historic site · Hit and run accident · Hlghgradlng · Hoarding · Hobart Mfg · Hobbs Act · Hobbs v · Hobby · Hobby loss · Hodge-Podge Act · Hoffmann v · Holder for value · Holder in due course · Holder in good faith · Hold harmless agreement · Holding company · Holding company tax · Holding period · Holdings · Hold over · Holdover tenant · Hold pleas · Holographic will · Holy Faith v · Holy Infancy v · Homage ancestral · Homage jury · Homan v · Home brew · Home Builders · Home Corp · Home loan bank · Home Loan Bank Board · Home oftice · Homeowner's association · Homeowners insurance · Home Owners'

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Loan Corp · Homeowners policy · Home Owners Warranty · Home port · Home port doctrine · Homer · Home rule · Home rule charter · Homestead · Homestead and exemption laws · Homestead Co · Homestead corporations · Homestead entry · Homestead exemption laws · Homestead right · Homicide by misadventure · Homicide by necessity · Homicide is not necessarily a crime · Homicide per infortunium

Homicide se defendendo · Homo Ihowmow I · Hom tenure · Honorable discharge · Honorary canons · Honorary feuds · Honorary services · Honorary trust · Honorary trustees · Honor courts · Hootch · Hope is the dream of the vigilant · Horizontal integration · Horizontal merger · Horizontal price-fixing contracts · Horizontal property acts · Horizontal union · Horngled · Hornswoggle · Hors de son fee · Horse power · Hospital AuthOrity · Hospltallers · Hospltator · Hostile act or state · Hostile embargo · Hostile fire · Hostile or adverse witness · Hostile possession · Hot blood · Hot cargo · Hot cargo agreement · Hotel · Hotel divorce · Hot issue · Hot pursuit · Hottle v · Hour · Hours of labor · House · Houseage · House-bote · House-burning · House counsel · House-duty · Household Finance Corp · House law · House of Commons · House of correction · House of Delegates · House of ill fame · House of Lords · House of prostitution · House of refuge · House of Representatives · House of Representatives of the United States · House of worship · Housing Administration · Housing code · Housing courts · Houston v · HOW · Howard's Ex'r v · Howth v · Hschaffa sagittarum · HUary term · HUD · Huey v · Hughes doctrine · Hughes v · Hulks · Humanitarian doctrine · Hume v · Humphrey v · Hundred Court · Hundred penny · Hundred rolls · Huntley hearing · Husbandman · Husband of a ship · Husbands v · Husband-wife privilege · Husband-wife tort actions · Hutchinson V · HUton doctrine · Hybrid class action · Hybrid security · Hyde V · Hypothecary debt · Hypothetical yearly tenancy

# I

I agriyamentam I · Iberville Land Co · Id · Idaho Power Co · I dakriyt kondamneydar I · I dalij iyeydas I · I damaysay I · I dayiyz frestay I · Identical · Identification evidence · Identification of goods · Identity of interests · Identity of parties · Ideo laydiyow I · I deyhasyown I · I deyspowhar I · I dimasoriyiy lidariy I · I diy · I diy miydiyow I · I diy mrelow I · I diy non desamrendow I · I diy plresadowI · I diy rektow diy redvakeyshiyowniy I · I diy rektowI · I diy srelva gardiyal · I diy statyuwdow steypaliyI · IdlY pleynow I · I eksfestakeriy I · I eksfriydiyeriy I · If he makes you secure · Ifiskas I · I f it b e certain who i s the person meant · Ignore · I have taken his body and he is held · I IedminQstreydQr kQm testQmendow Qneksow I · III · III and Edward I · III Ariz · I I I Colo · III fame · I inkarsareyshan I · Ikbal · Ikbal dawa · Ikonswatyuwdow kyuriyiy I · I kowars I · Ikrab · Ikrar · Ikrar nama · Ilarsaniy I · IlHnois land trust · Ill · Illegal consideration · Illegal entry · Illegal interest · Illegally obtained evidence · Illegal per se · Illegal trade · Illegitimate child · IlliCit cohabitation · Illicit relations · Illinois legislature · Illusory appointment · Illusory Appointment Act · Illusory promise · Illusory trust · Imaneriy I · Immaterial averment · Immaterial evidence · Immaterial facts · Immaterial issue · Immaterial variance · Immediate · Immediate cause · Immediate control · Immediate danger · Immediate descent · Immediate notice · Immedlacy · Immemorial possession · Immemorial usage · Immigrant · Immigration and Nationality Act · Immigration and Naturalization Service · Immigration Appeals Board · Imminent · Imminently dangerous article · Imminent peril · Imminent perU · Immoral act or conduct · Immoral consideration · Immoral contracts · Immorality · Imm unity from prosecution · Immunity from such fine · Immunization · Impacted area · Impact rule · Impaired capital · Impairing or prejudicing · Impairing the obligation of contracts · Impanelling of jury · Impartial expert · Impartial jury · Impeachment of verdict · Impeachment of waste · Impeachment of witness · Impede · Impediment to marriage · Imperfect title · Imperfect trust · Imperfect usufruct · Imperfect war · Impersonation · Impescare limpaskeriy I · Impetrare limlXltreriy I · Impleader · Implied agency · Implied agreement · Implied assent · Implied assertions · Implied authority · Implied consent · Implied considerations · Implied easement · Implied intent · Implied license · Implied malice · Implied notice · Implied partnership · Implied powers · Implied promise · Implied reservation · Implied reservation of water doctrine · Implied trust · Implied waiver · Implied warranty · Implying

obligation or incurring responsibility · Import · Import-export clause · Import letter · Import quota · Imports indefinite succession or continuance · Impose · Imposition of sentence · Impossibility of performance of contract · Impossible consideration · Impossible contract · Imposter · Impound account · Impoverishment · Impracticability · Imprest fund · Imprest money · Impristi limpristay I · Improbable · Improper cumulation of actions · Improper feuds · Improper influence · Improperly obtained evidence · Improved land · Improved value · Improvement bond · Improvement bonds · Improvements made by lessee · Improvidence · Improvidently · Impubes I impyuwbiyz I · ImputabiUty · Imputation of payment · Imputed cost · Imputed income · Imputed interest · Imputed negligence · Imputed notice · I mrelvarseyshan I · In a corporate capacity · Inadequate consideration · Inadequate damages · Inadequate price · Inadequate remedy at law · Inalienable rights · In ambiguo lin sembigyuwow I · In another place · In another's right · In appellate practice · In association with · Inateyliy I · In blank · Inc · In camera inspection · In camera proceedings · Incapability of existing or being exercised together · Incapacitated person · In case · Incestuosi linseschuwowsay I · Incestuous adultery · Incestuous bastards · In chancery pleading · In charge of · Inchartare linkarteriy I · Inchmaree clause · Inchoate crimes · Inchoate dower · Inchoate instrument · Inchoate interest · Inchoate lien · Inchoate right · Incidental · Incidental authority · Incidental beneficiary · Incidental damages · Incidental powers · Incidental to arrest · Incidental to employment · Incidental use · Incident of ownership · Incitement t o riot · Inciter · Incivlle linsivaliy I · Include · Included in the evidence already adduced · Included offense · Includes both libel and slander · Includes taking by devise · Inclusive survey · Incognito · Income averaging · Income basis · Income beneficiary · Income bond · Income In respect of decedent · Income property · Income statement · Income tax · Income tax deficiency · Income tax return · Incommunicado · Incommunicatlon · Incompatibillty · Incompetent evidence · Incomplete transfer · In consideration of the premises · I n consideration thereof · Inconsistent presumptions · In contemplation of death · Incontestability clause · Incontestable policy · In continenti lin kontanentay I · In conveyancing · Incorporate · Incorporated · Incorporated law society · Incorporation · Incorporation by reference · Incorporator · Incorporeal chattels · Incorporeal hereditaments · Incorporeal property · Incorporeal rights · Incorporeal things · Increase · Increased rate of pay for inAccept · Incremental cost · In criminal law · Incriminating admission · Incriminating circumstance · Incriminating evidence · Incrimination · Incriminatory statement · Inculpatory evidence · Incumber · Incumbrances · Incurable disease · Ind · Indecent · Indecent assault · Indecent exhibition · Indecent exposure · Indecent liberties · Indecent publications · In default · Indefinite · Indefinite failure of issue · Indefinite legacy · Indefinite number · Indem · Indemnification · Indemnity against liability · Indemnity bond · Indemnity Co · Indemnity contract · Indemnity Ins · Indemnity insurance · Indemnity lands · Indemnity policy · Indenture of a fine · Indenture of trust · Indenture trustee · Independent adjuster · Independent advice

Independent agent · Independent a udit · Independent contract · Independent contractor · Independent covenant · Independent School Dist · Independent significance · Independent source rule · Independent union · Indestructible trust · Indeterminate bond · Indeterminate conditional release · Indeterminate obUgation · Indeterminate sentence · Index animi sermo lindgks zngmay sarmow I · Index Drilling Co · Index offenses · India By and Through Director of India Supply Mission v · Indian Claims Commission · Indian country · Indian lands · Indian reservation · Indian title · Indian tribal property · Indian tribe · Indicare lindgkeriy I · Indicatif · Indicavit lindgkeyvgtl · Indicia of title · Indictable lindaydabal l · Indictable offense · Indictee lindaytiy I · Indictment l indaytmantl · Indigent defendant · Indigent I indajantl · Indirect evidence · Indirect tax · Indirect taxes · Indispensable evidence · Indispensable parties · Indispensible parties · Individual assets · Individual debts · Individually · Individual proprietorship · Individual Retirement Account · Individual Retirement Annuity · Individual Retirement Bond · Individual system of location · Indorsee in due course · In dorso lin dorsow I · In double · In doubt · Induce · Indus · Industrial Acc · Industrial development bonds · Industrial disease · Industrial Foundation of the South v · Industrial goods · Industrial relations · Industrial union · Industries of Gulf Coast v · Industry · In economic theory there are several meanings · In

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England there is no interregnum · In equal hand · In equity pleading · Inescapable peril · In esse lin esiy l · In estates and property · In est de jure l inest diy juriy l · In evidence · Inevitable accident · In exchange · In exSee Easement · In fact · In facto lin fzktow l · Infamous punishment · In fault · In favor of life · In fee · In feodo lin fyUwdow l · Inferences drawn from facts proved · Inferential facts · Inferred a uthority · Infidelity · Infirmative · Infirmative consideration · Infirmative fact · Infirmative hypothesis · Infirmity · Informal contract · Informality · Informal marriage · Informal proceedings · Informant · Information · Information and belief · Informative advertising · Informed consent · Informer's privnege · In fraud of the law · In French law · Infringement of copyright · Infringement of patent · Infringement of some right · Infringement of trademark · Infringer · In full · In genere lin jenariy l · Ingraham v · Ingress · Inhabit · In hac parte lin hzc pardiy l · Inherent and collateral · Inherent authority · Inherently dangerous · Inherent or latent defect · Inherent powers · Inherent powers of a court · Inherent right · Inheritance tax · Inherit linhehratl · In international law · In issue · Initial appearance · Initial carrier · Initial surplus · Initiate and consummate · Initiation fee · Iniyfres l · Iniymow l · InJunes · In jure proprio lin j uriy prowpriyow l · Injurious falsehood · Injury InfllCted wIthout any act of injustice · Injury o r wrong without damage · Inlagare finlageriy f · Inland bill of exchange · Inland marine insurance · Inland navigation · Inland trade · Inland waters · Inlaughe f inia l · In laws · In maritime law · In mercantile law · Innavigable · InnavigabUity · Innocence · Innocent agent · Innocent conveyances · Innocent purchaser · Innocent trespass · Innocent trespasser · Innominate contracts · Innotescimus l inOltesOlmOls l · Innuendo linyuwendow l · Inofflciocidad l inowfiysiyowsiydad l · In old · In old conveyLat · In old English law · In old English practice · In old European law · In old French law · Inon distrinjendow l · In one breath · Inon impadayvatl · l non lisat kwod daspendiyow lisatl · In or at the beginning · In or through the midst of · In pari causa lin preray kozar perayO l · In patiendo lin pZshiyendow l · Inpeny and outpeny linpeniy rend awtpeniy l · In personam jurisdiction · In personam or inter partes · In plena vita lin pliyna vaydaI · In posse lin posiy l · In prender lin prendar l · In public commercial law · Inquest · Inquest jury · Inquest of office · Inquiry court · Inquisition after death · In re lin riy l · In rem jurisdiction · In rem mortgage · In respect of decedent · In right of a wife · In right of the crown · Inrollment · In Roman law · Ins · Insane delusion · Inscribed · Insecure · Insecurity clause · Inside director · Insider · Insider information · Insider reports · Insider trading · Insinuation of a will · In Spanish law · Inspection laws · Inspection of documents · Inspection rights · Inspection searches · Inspector · Install · Installment · Installment contract · Installment credit · Installment debt · Installment land contract · Installment loan · Installment method · Installment note · Installment plan · Installment sale · Instance court · Instancia l iynstansiya l · Instant · Instantaneous death · Instantly · Instar l instar l · InstaUation · Instituted executor · Institutes of Gaius · Institutes of Justinian · Institutes of Lord Coke · Instructed verdict · Instructions · Instructions to jury · Instrumental · Instrumentality rule · Instrumental trust · Instrument of appeal · Instrument of evidence · Instruments · Insubordination · Insufficient · Insular courts · Insular possessions · Insulation period · Insurable · Insurable value · Insurance adjuster · Insurance agent · Insurance broker · Insurance Co · Insurance commissioner · Insurance company · Insurance contract · Insurance Corporation · Insurance law · Insurance policy · Insurance premium · Insurance rating · Insurance trust · Intangible asset · Intangible assets · Intangibles · Intangibles tax · Integrated bar · Integrated contract · Integrated property settlements · Integrated writing · Integration · Intended use doctrine · Intendente lIntendentey l · Intent · Intent and motive should not be confused · Intentional tort · Intentione f intimshiyowniyf · Intention t o sign instrument a s and for a will · Intent to kill · Inter alios f intar eyliyas f · Inter anna silent leges f intar arma saylant Jiyjiyz f · Inter apices juris f intar eypasiyz juras f · Intercalare fintarkaleriy f · Intercedere fintarsiydariy f · Interception · Interdiction of fire and water · Interesse lintaresiy l · Interesse termini · Interest and grievance arbitration distinguished · Interest bond · Interested person · Interest equalization tax · Interest policy · Interest rate · Interest upon interest · Interest warrant · Interfere · Inter f intar · Interim financing · Interim officer

Interim order · Interim receipt · Interim statements · Interinsurance · Interior Department · Interlake Iron

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Corporation v · Interlaqueare linbrlrekwiyeriy I · Interlining · Interlocking director · Interlocking directorate · Interlocutory appeal · Interlocutory Appeals Act · Interlocutory costs · Interlocutory injunction · Interlocutory judgment · Interlocutory order · Interlocutory sentence · Interloper · Intermediary bank · Intermediate account · Intermediate courts · Intermediate order · Intermingled with · Intermittent stream · Intermixture of goods · Intermountain Realty Co · Internal act · Internal affairs doctrine · Internal affairs of corporation · Internal audit · Internal commerce · Internal improvements · Internal police · Internal revenue · Internal Revenue Code · Internal Revenue Service · Internal Revenue v · Internal security · Internal security acts · Internal waters · InternaMaritime law · International agreements · International Court of Justice · International jurisdiction · International Monetary Fund · International Shoe Case · International union · Internment · Interplea l inbrpliy I · Interpol · Interpolated terminal reserve · Interpretation clause · Interrogation · Interrogatoire linterogatwar I · In terrorem clause · Interspousal · Interspousal immunity · Interstate agreements · Interstate and foreign commerce · Interstate commerce · Interstate Commerce Act · Interstate Commerce Commission · Interstate Commerce Com'n v · Interstate compact · Interstate enforcement · Interstate extradition · Interstate Land Sales Full Disclosure Act · Interstate law · Interstate offerings · Interstate rendition · Interval ownership · Intervening act · Intervening agency · Intervening cause · Intervening force · Intervenor · Inter vivos gift · Inter vivos transfer · Inter vivos trust · Intestate laws · Intestate succession · Intestato lintesteydow I · Intestatus I intesteydas I · In the civil law · In the course of employment · In the custody or keeping of the law · In the first place · In the greatIn equity · In their allegiance · In the north of England a division of a carucate · In the Roman law · In the soil or ground · In the whole the part also is contained · I n things preceding judgment the plaintiff i s favored · Intimate · Intimation · In time past · Into · Intol and uttol · In toto lin towdow I · Intoxicated · Intoxicating Uquor · Intoximeter · Intrastate offerings · Intrinsic · Intrinsic fraud · Intrust · Inundation · Invadlare linveydiyeriy I · Invasion of corpus principal · Invasion of privacy · Inveigle · Inventions · In ventre sa mere lin ventriy sa mer I · Inverse condemnation · Inverse order of alienation doctrine · Investigate · Investigatory powers · Investment · Investment advisor · Investment Advisors Act · Investment banker · Investment banking · Investment bill · Investment company · Investment Company Act · Investment contract · Investment credit · Investment property · Investments · Investment securities · Investment security · Investment tax credit · Investment trust · Investors' Syndicate v · InviolabiUty linvayalabiladiy I · Inviolate · Invitation to bid · Invitee · Invito l invaydow I · Invoice book · Involuntary alienation · Involuntary bailment · Involuntary confession · Involuntary conversion · Involuntary conveyance · Involuntary deposit · Involuntary discontinuance · Involuntary dismissal · Involuntary lien · Involuntary manslaughter · Involuntary payment · Involuntary servitude · Involuntary transfer · Involuntary trust · In Worker's Compensation Acts · Inyo Marble Co · Ipso facto l ipsow fzktow I · Ipso jure I ipsow juriy I · IRA · IRAN · IRD · Ireskyuw I · I reyhiymyentow I · Ireyzhiym on komyilwnowtey I · Iriyv I · Iron-safe clause · Iron Silver Min · Irrebuttable presumption · IrreconcUable differences · Irregular judgment · Irregular process · Irregular succession · Irrelevant allegation · Irrelevant answer · Irrelevant evidence · Irreparable damages · Irreparable harm · Irretrievable breakdown of marriage · Irrevocable letter · Irrevocable letter of credit · Irrevocable offer · Irrevocable trust · Irrigation company · Irrigation district · Irven v · Irving v · Is · Isolation of person afflicted with contagious disease · Issuable defense · Issuable plea · Issuable terms · Issuance · Issued stock · Issue of fact · Issue of law · Issue preclusion · Issuer · Issues and profits · Issues arising from or out of a thing · Ital · Italian law · It does not follow · It does not mean a condition of perfect health · It does not mean entirely or exclusively · It does not necessarily mean that title has passed · Itemize · Itemized deductions · Item veto · It has given way to the remedy by quare impedit · It has long been obsolete · Itinerant peddling · Itinerant vendor · It is a cubic meter · It is a direct obligation of the bank · It is always a virtual monopoly · It is applicable to criminal cases · It is doubted · It is governed by the same rules as the replication · It is now almost obsolete · It is of feudal origin · It is of great authority · It is the largest stock exchange in the country · It may be vested or continContingent remainder · It operates directly upon the property · It shifts burden of proof · It was

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abolished by St · It was abolished in England by St · It was amended and supplemented by St · It was anciently held on Sunday next before St · It was finally abolished by Car · Ivy v · I was not present

# J

Jac · Jacklich v · Jackson v · Jacovides v · Jactitation of marriage · Jactitation of tithes · Jagendorf v · Jailhouse lawyer · James I · James v · Jantzen Knitting Mills v · Janus-faced · Jap · Japanese · Japanese residing in the United States · Japan for education and training · Japan Gas Lighter Ass'n v · Jaques · Jargon name for marihuana · Jargon term for one thousand dollars · Jason clause · Jay walking · Jefferson County ex rel · JEgroto liygrowdow I · Jelin v · Jencks Act or Rule · Jeopardy assessment · Jersey under an interstate compact · Jerusalem · Jesus Christ · Jetty · Jeutenant general · Jeux de bourse Izhuw dQ bUrsI · Jizemerjian v · Jobst v · John Doe · John Doe and Richard Roe · Johnson Freight Lines v · Johnson v · Join · Joinder in demurrer · Joinder in issue · Joinder in pleading · Joinder of claims · Joinder of defendants · Joinder of error · Joinder of indictments · Joinder of indictments or infonnations · Joinder of issue · Joinder of offenses · Joinder of parties · Joinder of remedies · Joint account · Joint action · Joint adventure · Joint and mutual will · Joint and several · Joint and several bond · Joint and several contracts · Joint and several liability · Joint and several note · Joint and several UabUity · Joint and survivorship annuity · Joint annuity · Joint authonblp · Joint ballot · Joint bank BCeOunt · Joint bond · Joint cause of action · Joint creditors · Joint debtors · Joint debtors' acts · Joint defendants · Joint enterprise · Joint estate · Joint executors · Joint fiat · Joint HabiHty · Joint heirs · Joint indictment · Joint Inventions · Jointist · Joint liability · Joint life insurance · Joint lives · Jointly acquired property · Jointly and severally · Jointly owned property · Joint mortgage · Joint negligence · Joint note · Joint offense · Joint or several · Joint or several obligation · Joint owners · Joint polley · Joint rate · Joint resolution · Joint return · Joint session · Joint-stock association · Joint stock company · Joint stock insurance company · Joint Stock Land Bank of Dallas v · Joint tariff · Joint tax return · Joint tenancy · Joint tenants · Joint through rate · Joint tort · Joint tort-feasors · Joint trespass · Joint trespassers · Joint trial · Joint trustees · Joint venture · Joint venture corporadon · Joint venture corporation · Joint verdict · Joint will · Joint wtll · Joker · Jones Act · Jones Knitting Corp · Jones v · Josh · Joumal entry · Joumal entry rule · Joumallsts' privilege · Journal entry · Journalist's privilege · Journeys account · Joyriding · Judge advocate · Judge advocate corps · Judge Advocate General · Judge de facto · Judge-made law · Judges · Judges chambers · Judge trial · Judgment book · Judgment creditor · Judgment debt · Judgment debtor · Judgment docket · Judgment execution · Judgment Hen · Judgment inter partes · Judgment me · Judgment note · Judgment notwithstanding verdict · Judgment of conviction · Judgment of his peers · Judgment of quod recuperet · Judgment on pleadings · Judgment paper · Judgment proof · Judgment quasi in rem · Judgment quod computet · Judgment quod partes replacitent · Judgment record · Judgment recovered · Judgment roll · Judgment roUe See RoU · Judgments · Judgments Act · Judgments frequently become matured by deliberations · Judgments in the king's court are not to b e annihilated · Judgment void on its face · Judicature · Judicial act · Judicial action · Judicial activism · Judicial acts · Judicial admission · Judicial and legal discretion · Judicial arm of the United Nations · Judicial Article · Judicial authority · Judicial bonds · Judicial branch · Judicial business · Judicial Code · Judicial cognizance · Judicial comity · Judicial convention · Judicial councR · Judicial decision · Judicial declaration of law · Judicial department · Judicial discretion · Judicial Dist · Judicial district · Judicial documents · Judicial duty · Judicial errors · Judicial estoppel · Judicial evidence · Judicial function · Judicial Hen · Judicial immunity · Judicial inquiry · Judicial knowledge · Judicial legislation · Judicial mortgage · Judicial notice · Judicial oath · Judicial office · Judicial officer · Judicial opinion · Judicial order · Judicial orders and decrees · Judicial power · Judicial proceeding · Judicial process · Judicial question · Judicial record · Judicial records · Judicial remedy · Judicial reprieve · Judicial review · Judicial Review Act · Judicial sale · Judicial separation · Judicial system · Judicial trustee · Judicial writs · Judiciary Acts · Judiciously · Juge d'instructlon · Juicio de apeo I huwfysiyow dey apeyow I · Juicio IhuwfysiyowI · Julian law of majesty · Junior bond · Junior counsel · Junior creditor · Junior execution · Junior interest · Junior judgment · Junior lien · Junior mortgage · Junior partner · Junior writ ·

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Junk · Junket · Jural cause · Juramentum calumnile I juramentam kalQmniyiy I · Jura mixti dominii Ijura mikstay daminiyay I · Jurat IjUl'QtI · Jure corone Ijuriy kQrowniy I · Jure uxoris · Juridical day · Juries are the judges of fact · Juris Civilis · JuriscUctlon · Jurisdictional amount · Jurisdictional dispute · Jurisdictional facts · Jurisdictional limits · Jurisdictional plea · Jurisdictional statement · Jurisdictional strike · Jurisdiction clause · Jurisdiction in personam · Jurisdiction in rem · Jurisdiction of the peace · Jurisdiction of the subject matter · Jurisdiction over person · Jurisdiction quasi in rem · Juris positivi Ijuns pozatayvayI · Juris privati Ijiins pnveyday I · Juristic act · Jury-box · Jury challenge · Jury commissioner · Jury instructions · Jury of matrons · Jury panel · Jury polling · Jury process · Jury questions · Jury Selection and Service Act · Jury size · Jury summation · Jury trial · Jury-Ust · Jury wheel · Jurywoman · Jus pascendi Ijas paesenday I · Jus spatiandi Ijas speyshiyamday I · Just cause · Just cause of provocation · Just compensation · Just debts · Justice · Justice Department · Justice ejectment · Justice is to be denied to none · Justice's clerk

Justice seat · Justices of gaol delivery · Justices of laborers · Justices of the bench · Justices of the forest · Justices of the hundred · Justices of the quorum · Justices of trall-baston · Justiciable controversy · Justicier · Justifiable cause · Justifiable homicide · Justiftcatlon · Justifying bail · Justinian gave to it the force of law · Justinian were generally dispensed with · Justitia plepoudrous · Justness · Just prior · Just title · Just value · Juvenlle · Juvenlle courts · Juvenlle delinquent · Juvenlle offenders · Juzgado Ihuwsgaoow I · JW'Or · JW'Or designate

## K

Kahawal IkAhavayiy I · Kahn v · Kan · Kangaroo court · Kansas City Public Service Co · Kansas City v · Kansas Criminal Code · Kaslovitz v · Kast-Ield · Kastigar v · Kauk v · Kayage · Keener v · Keen v · Keeper of a bawdy house or house of m fame · Keeper of dog · Keeper of the forest · Keeper of the great seal · Keeper of the king's conscience · Keeper of the privy seal · Keeper of the touch · Keeping a gambUng house or place · Keeping a lookout · Keeping books · Keeping the peace · Keep In repair · Kegerreis v · Keigley V · Keiki Ikeykiy I · Keller v · Kelley v · Kelly v · Kelman v · Kelp-shore · Kemp v · Kenilworth · Kennecott Copper Corp · Kentucky Rule · Kent v · Keogh Plan · Kerhere · Ketauver-Cellar Act · Ketubah · Key man insurance · Key man life insurance · Keyus Ikiyas I · Kibei Ikiybey I · KIckback · Kidnapping for ransom · Kidwell v · Kiessig v · Kilberg doctrine · Kilbreath v · KIlketh · Killed instantly · Kimpton v · KIng can do no wrong · King-craft · KIng-geld · Kings and Emperors · King's silver · King's widow · Kin or kindred · Kinsfolk · Kinship by the father's side · Kinswoman · Kirkby v · Kirk v · Kist · Kitchen cabinet · Kiting · Knabb v · Kniffley v · Knighthood · Knight of the Order of St · Knights · Knights bachelors · Knights banneret · Knights fee · Knights of the Garter · Knights of the post · Knights of the shire · Knight's service · Knock and announce rule · Know · Know all men by these presents · Knowingly affirming without probable cause · Knowingly and willfully · Knowledgable and educated · Knowledge of another's peril · Known · Known heirs · Knox v · Kolling v · Kosik v · Kossar v · Krauss v · Kreis v · Krulee v · Kugler v · Ku Klux Act · Kuleana IkUwleyana I · Ky · Kyle v

## L

Lablsllt · Labor · Laboratory Co · Labor contract · Labor dispute · Laborers' Hen · Labor-management relations · Labor-Management Relations Act · Labor organization · Labor picketing · Labor Relations Act · Labor Relations Board · Labor Relations Board v · Labor standards · Labor union · Lacey Act · La chambre des esteilles · Lacking a claimant · Lack of cultivation or refinement · Lack of jurisdiction · Lack of requisite legal age · Lada Ileyda I · Lady-court · Lady's friend · Lafleur v · Lafordswic · Lage day · LaIssez-faire Ilesey fer I · Laity · Lake Carriers' Ass'n v · Lake Lumber Co · Lame Duck Amendment · Lame duck session · Land · Land and real estate · Land bank · Land boundaries · Land certificate · Land contract · Land cop · Land Corp · Land court · Land damages · Land department · Land descriptions · Land district · Landed estate or property · Landed estates court · Landed securities · Land gabel · Land grant · Land held on a lease for lives ·

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Landhlaford I lrendlord I · Landirecta I lrendarekta I · Land let to farm · Landlord and tenant relationship · Landlord's warrant · Land lying unoccupied is given to the first occupant · Land Management · Land measure · Land offices · Land passes subject to any burden affecting it · Land passes with the incumbrances · Land patent · Land-poor · Land-reeve · Land revenues · Landrum-Griffin Act · Land sale contract · Lands bordering on bodies of waters · Land sown with com · Land surrounded by some visible obstruction · Land tax · Land tenant · Land Titles and Transfer Act · Land trust · Land use planning · Land waiter · Land warrant · Lane v · Langemanni · Language is the exponent of the intention · Lanham Act · Lanham v · Lanns manus · Lanzetta v · Lappage Ilzpaj I · Lapse · Lapsed devise · Lapsed legacy · Lapsed policy · Lapse patent · Larcenous I hirsanas I · Larcenous intent · Larceny · Larceny by bailee · Larceny by extortion · Larceny by fraud or deception · Larceny by trick · Larceny distinguished · Larceny from the person · Larceny of auto · Larceny of cattle · Large amount of stock or bonds sold as a unit · Larger parcel · Lascivious cohabitation · Last antecedent rule · Last clear chance doctrine · Last heir · Last illness · Last resort · Last seisin · Last sickness · Last will · Lat · Latent ambiguity · Latent deed · Latent defect · Latent equity · Latent or secret equity · Latin · Latin maxim · Latin word imperator is used · Latium or of the Latins · Latro I lztrow I · Latta v · Latter-day Saints · Laughe · Laughlin v · Launch · Laundry Co · Law · Law always regards the intention · Law and equity · Law arbitrary · Law court of appeals · Law day · Law department · Law Enforcement Assistance Act · Law enforcement officer · Law French · Lawful age · Lawful arrest · Lawful authorities · Lawful cause · Lawful coined money · Lawful damages · Lawful dependents · Lawful discharge · Lawful entry · Lawful goods · Lawful heirs · Lawful issue · Lawful man · Lawful money · Lawful money o f England · Lawfulness · Lawful representatives · Law i s the science of what is good and just · Law Judge to Appeals Council in social security case · Law latin · Law list · Law lords · Law martial · Law merchant · Law of agency · Law of a general nature · Law of arms · Law of capture · Law of citations · Law of distribution and descent · Law of evidence · Law of guaranty and suretyship · Law of libel · Law of marque · Law of master and servant · Law of nations · Law of nature · Law of personal property · Law of shipping · Law of the case · Law of the flag · Law of the land · Law of the road · Law of the staple · Law of wills · Law questions · Law reporters or reports · Law review · Laws · Law School Admissions Test · Laws of oleron · Laws of the several states · Laws of war · Law spiritual · Laws under a weightier law · Law worthy · Layaway · Lay corporation · Lay days · Lay dBllUlRes · Lay fee · Laying down of arms · Laying foundation · Laying the venue · Lay investiture · Lay judge · Lay lmpropriator · Layman · Layoff · Lay people · Lay system · Lay witness · LazzL A Saxon term for persons of a servile condition · LC · LEAA · Leader v · LeadIng a use · Leading case · Leading object rule · Leading question · League · Learn · Lease and release · Leaseback · Leasehold improvements · Leasehold interest · Leasehold mortgage · Leasehold mortgage bond · Leasehold value · Leases in general · Lease with option to purchase · Leave no Issue · Leave of absence · Leave of court · Leave to accord · Leave to imparl · Leccator Ilakeydar I · Lechner v · Lecompte v · Ledo l liydow I · Lee v · Left · LegabUis I lageybalas I · Legacies · Legacy duty · Legacy or succession tax · Legal · Legal age · Legal aid · Legal assets · Legal brief · Legal capacity to sue · Legal capital · Legal cause · Legal conclusion · Legal consideration · Legal cruelty · Legal custody · Legal death · Legal debts · Legal defense · Legal demand · Legal description · Legal detriment · Legal discretion · Legal distributees · Legal duty · Legal entity · Legal estoppel · Legal ethics · Legal evidence · Legal excuse · Legal fiction · Legal form is essential form · Legal fraud · Legal heirs · Legal holiday · Legal impossibility · Legal incapacity · Legal insanity · Legal interest · Legal issue · Legalized nuisance · Legal liability · Legal life estate · Legal list · Legally adopted · Legally committed · Legally competent · Legally constituted court · Legally contributing cause of injury · Legally determined · Legally liable · Legally operating automobile · Legally reside · Legally sufficient evidence · Legally sufficient tender · Legally using automoblle · Legal malice

Legal malpractice · Legal memory · Legal mortgage · Legal name · Legal negligence · Legal newspaper · Legal notice · Legal obligation · Legal owner · Legal possessor · Legal prejudice · Legal presumption · Legal privity · Legal proceedings · Legal process · Legal rate · Legal rate of interest · Legal remedy · Legal

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representative · Legal reserve · Legal residence · Legal right · Legal separation · Legal Services Corporation · Legal subdivisions · Legal subrogation · Legal succession · Legal tender · Legal tender cases · Legal title · Legal usufruct · Legal voter · Legal wHlfulness · Legenita · Leges I liyjiyz I · Leges Julie lliyjiyz juwliyiy I · Leges non scripte lliyjiyz non skriptiy I · Leges scripte lliyjiyz skriptiyI · Legislate · Legislative act · Legislative and political · LegIslative apportionment · Legislative body · Legislative councU · Legislative counsel · LegIslative courts · LegIslative department · Legislative district · Legislative districting · Legislative divorce · Legislative functions · LegIslative history · LegIslative immunity · Legislative investigations · LegIslative jurisdiction · Legislative officer · Legislative power · Legitimate child · Legitimate heirs · Lehigh Valley R · Lehurecht · Leidgrave Ileydgreyv I · Lella v · Leonard v · Leo the Philosopher · Le roi veut en deliberer · Leschewes · Leslng or leasing · Lessee's interest · Lesser included offense · Lessor of the plaintiff · Lessor's interest · Lethal · Let it b e a s it is desired · Let it be executed · Letter · Letter-book · Letter contract · Letter missive · Letter of administration · Letter of attorney · Letter of attornment · Letter of comment · Letter of credence · Letter of credit · Letter of exchange · Letter of intent · Letter of license · Letter of marque and reprisal · Letter of recommendation · Letter patent · Letter ruling · Letters · Letters close · Letters of absolution · Letters of administration · Letters of guardianship · Letters of safe conduct · Letters patent · Letters testamentary · Letter stock · Let the seller beCaveat viator I kreviyat viyeydar I · Letting · Letting or awarding of bids · Levant et couchant I levant ey kAwchanti · Levato velo I laveydow viylow I · Levee district · Levee I leviy I · Level premium insurance · Leverage · Levy · Levy court · Lewandoski v · Lewd and lascivious cohabitation · Lewd bouse · Lewd person · Lex barbara I leks barbara I · Lex celebrationis · Lex commercii · Lex Kantile Ileks Ioenshiyiy I · Lex loci rei site Ileks lowsay riyay saydiy I · Lex rei sitae Ileks riyay saydiy I · Lex solutionis · Lex teme Ileks tehriy I · Liability Assur · Liability bond · Liability Ins · Liability in solido · Liability insurance · Liable · Liable to action · Liable to penalty · LiabUity imposed by law · LiabUity insurance · Libel and slander · Liberty of a port · Liberty of conscience · Liberty of contract · Liberty of speech · Liberty of the globe · Liberty of the press · Liberty to hold pleas · License bond · License cases · Licensee by invitation · Licensee by permission · License in amortization · License tax · Lien by operation of law · Lien created by an agreement · Lien creditor · Lien which is subordinate to prior lien · Lieutenant colonel · Lieutenant commander · Lieutenant governor · LIfe · LIfe annuity · Life Assur · LIfe beneficiary · LIfe care contract · LIfe estate · LIfe expectancy · Life imprisonment · LIfe in being · Life Ins · Life insurance · LIfe insurance proceeds · LIfe insurance reserves · LIfe insurance trust · LIfe interest · LIfe of a writ · LIfe or Umb · LIfe peerage · LIfe poUcy · Life sentence · LIfe tables · LIfe tenancy · LIfe tenant · Lighterage Corporation v · Limitation in law · Limitation of actions · Limitation of assize · Limitation of damages · Limitation over · Limitation title · Limited a uthority · Limited company · Limited divorce · Limited partner · Limited partnership · Limited payment life insurance · Limited policy insurance · Limited trust · Limited v · Lineal and collateral consanguinity · Lineal descendent · Lineal heir · Lineal warranty · Line of credit · Line on the shore marking the lowest ebb of the tide · Lingo Lumber Co · Linnton Plywood Ass'n v · Liquid assets · Liquid assets which are readily convertible into money · Liquidated damages and penalties · Liquidation dividend · Liquidation value · Liquid debt · Lis pendens · Listed market securities · Listed security · Listed stock · Lit · Literacy test · Littell v · Little Falls v · Little v · Littoral land · Liverpool for corn · Lives and Granting Annuities v · Living trust · Living will · LJ · Llenland Ileynlamd I · Llesiwerp · Llet · Load fund · Loading · Load line · Loadmanage · Loaf · Loan Ass'n of Coffeyville v · Loan Assoc · Loan association · Loan at interest · Loan Banks · Loan certificates · Loan commitment · Loaned employee or servant · Loaned servant doctrine · Loan for consumption · Loan for exchange · Loan for use · Loan ratio · Loan sharking · Loan societies · Loan to use · Loan value · Lobbying acts · Lobbyist · Local act · Local action · Local actions · Local affairs · Local agent · Local and special legislation · Local assessment · Local chattel · Local concern · Local courts · Local gdvemment · Local government · Local improvement · Local improvement assessment · Locality of a lawsuit · Localization · Local law · Local No · Local option · Local rules · Local statute · Local taxes · Local union · Local usage · Located · Location · Locked in · Lockout · Lockup · Lococession · Lodge Brotherhood of Railroad

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Trainmen v · Lodging house · Lodging place · Logical relevancy · Lohmann v · Lombardian law · London · London for the recovery of rent · London hustings · London lloyds · London was so called · Long account · Long and short haul clause · Long arm statutes · Long Beach Inv · Longevity pay · Long Leaf Lumber Co · Long parliament · Long position · Long possession begets right

Long possession is the law of peace · Long robe · Longshoreman · Longshoremen's and Harbor Workers' Compensation Act · Long term capital gain · Long term capital loss · Long term financing · Long term gain · Long term lease · Long term loss · Long ton · Long v · Look and listen · Looney v · Lord and vassal · Lord campbell Act · Lord chief baron · Lord chief justice · Lord High Chancellor · Lord high steward · Lord high treasurer · Lord in gross · Lord keeper · Lord lieutenant · Lord Mansfield's Rule · Lord mayor · Lord mayor's court · Lord of a manor · Lord paramount · Lord's day · Lords justices of appeal · Lords of appeal · Lords of appeal in ordinary · Lords of parliament · Lords ordainers · Lords spiritual · Lords temporal · Lose · Loss in operation of business · Loss is a generic and relative term · Loss leader · Loss of consortium · Loss of earning capacity · Loss payable clause · Loss payee · Loss ratio · Loss reserve · Lost corner · Lost or not lost · Lost papers · Lost property · Lost will · Lot book · Louisiana v · Louis v · Love and affection · Lowbote · Low diligence · Lower of cost or market · Lowest responsible bidder · Low-water mark · Loyalty oath · Loyd v · LR · LS · LSAT · Ltd · Lucas v · Lucid · Lucid Interval · Luckenbach S · Lucrative bailment · Lucrative office · Lucrative title · Lump-sum alimony · Lump-sum distribution · Lump-sum payment · Lunar month · Lundberg v · Luscher v · Luxury tax · Lynch v · Lytle Ilaydiy I

# M

Mace-greff Imeysgrefl · Mace-proof · MacGowan v · Mach · Machine Co · MacPherson v · Made · Made one · Madison Suburban Utility Dist · Mad ParUament · Magers v · Magisterial precinct · Magistrate's courts · Magnuson-Moss Warranty Act · Mail fraud · Mail order divorce · Maimed or wounded · MaIn-a-main · Main channel · Maine and Massachusetts · Mainly · MaInprise · MaIn purpose doctrine · Main-rent · Main sea · Mainsworn Imeynsworn I · Maintenance and cure · Maintenance assessment · Major and minor fault rule · Major crimes · Major dispute · Majores Imajoriyz I · Majority of qualified electors · Majority opinion · Majority rule · Majority vote · Major medical insurance · Make · Make a contract · Make an award · Make default · Making or having the power to make a law or laws · Making record · Mal · Mala grammatica non vitiat chartam · Mala in se Irruela in siy I · Malapportionment · Malconduct Irruelkondakt I · Mal gree Irruel griy I · Malice aforethought · Malice directed against a particular individual · Malice in fact · Malice in law · Malice prepense · Malicious abandonment · Malicious abuse of legal process · Malicious accusation · Malicious act · Malicious assault with deadly weapon · Malicious Imalishas I · Malicious injury · Malicious killing · Maliciously · Malicious mischief · Malicious motive · Malicious prosecution · Malicious trespass · Malicious use of process · Malleable Imreliyaball · Mallory Rule · Mallory v · Mallum · Malo grato Imtelow greydow I · Maloney Act · Malpractice insurance · MalveUles · Mammoth Gold Dredging Co · Management · Manager · Managers of a conference · Managing agent · Mandamlento Imandamyentow I · Mandamus · Mandatory injunction · Mandatory instruction · Mandatory instructions · Mandatory obligation to perform · Mandatory sentence · Mandatory sentencing · Mandatory statutes · Mandavi ballivo lIrulndeyvay belavow I · Manic · ManIfestation of intention · ManIfest law · ManIfest necessity · ManIpulation · ManIdnd · Mann Act · Manner · Manner theretofore prescribed · MannIng · Manning v · Mannix v · Man of straw · Manorial system · Mansion house · Mansker v · MansteaHng · Manual delivery · Manual gift · Manual labor · Manual rating insurance · Manufacturers liability doctrine · Manufacturers' R · Manufacturing establishment · Manumission Imamyamishan I · Manupes Imrenyapiyz I · Manure · Manus marriage · Many of the ancient lawbooks are folios · Many promises lessen confidence · Mapp v · Mar · Mara I mera I · Marajuana · Maraud · Marbury v · Mare Imeriy I · Margin · Margin account · Marginal street · Margin call · Margin list · Margin profit · Margin trading · Margin transaction · Marine belt · Marine carrier · Marine contract · Marine Corps · Marine court in

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the city of New York · Marine Ins · Marine insurance · Marine interest · Marine risk · Mariner's will · Marino v · Marital agreements · Marital communications privilege · Marital deduction · Marital deduction trust · Marital portion · Marital privileges · Marital property · Marital rights · MarItal rights and duties · MarItime Administration · MarItime belt · MarItime bills · MarItime cause · MarItime Commission · Maritime contract · Maritime court · Maritime interest · Maritime jurisdiction · Maritime law · Maritime lien · Maritime loan · Maritime prize · Maritime service · Maritime state · Maritime tort · Mark · Marked money · Marketability · Marketable securities · Marketable security · Marketable title · Marketable Title Acts · Market Co · Market geld · Marketing contract · Market making · Market order · Market overt · Market price · Market quotations · Market share · Market structure · Market value · Marking up · Markon · Marksman · Markup · MarrIage articles · MarrIage broker · MarrIage ceremony · MarrIage certificate · Marriage in jest · MarrIage license · MarrIage-notice book · MarrIage portion · MarrIage promise · MarrIage records · MarrIage settlement · Marshaling assets · Marshaling liens · Marshaling remedies · Marshaling securities · Marshall v · Marshal of the Queen's bench · Marshal to each judicial district · Martinez v · Martin v · Mary Carter agreement · Maryland Cas · Mason and Dixon Line · Mass · Massachism · Massachusetts · Massachusetts ballot · Massachusetts Company · Massachusetts or business trusts · Massachusetts rule · Massachusetts trust · Masses · Master agreement · Master and servant · Master at common law · Master deed or lease · Master in chancery · Master in lunacy · Master lease · Master of a ship · Master of the Crown Office · Master of the Faculties · Master of the Horse · Master of the Mint · Master of the Ordnance · Master of the rolls · Master plan · Master policy · Master polley · Masters of the supreme court · Master's report · Material allegation · Material alteration · Material evidence · Material fact · Materialman · Materialman's lien · Material representation · Materials used or consumed to produce other goods · Material witness · Maternal line · Maternal property · Mathis v · Matima · Matrimonial action · Matrimonial cohabitation · Matrimonial domicile · Matter In deed · Matter in issue · Matter of course · Matter of fact · Matter of form · Matter of law · Matter of record · Matter of substance · Matters of subsistence for man · Mattison-Greenlee Service Corporation v · Matured · Maturity value · Mauritz v · Maximum · Maximum sentence · Maxmillian · May · May also function to aid in resolving marital disputes · Mayfield v · Mayorazgo Imayonisgow I · Mayor's court · May represent accumulated losses · May V · McCrabb v · McFarland v · McGee v · McGovern Plaza Joint Venture v · McGrew v · McKendree v · McKnight v · McLeod v · McMahon V · McNabb-Mallory Rule · McNaghten Rule · McNaulty v · MDItare lmilateriy I · MDItary appeals · MDItary base · MDItary boards

MDItary government · MDItary jurisdiction · Me · Meander lines · Mean high tide · Meaning · Mean lower low tide · Mean low tide · Mean reserve · Means · Means taxable period · Measure of damages · Measure of value · Measuring money · Mecca to Medina · Mechanical equivalent · Mechanical Ice Tray Corporation v · Mechanical process · Mechanic's lienor · Mechling V · Mediation and ConcUiation Service · Mediation Board · Mediator · Mediators of questions · Medicaid · Medical care · Medical deduction · Medical evidence · Medical examiner · Medical expenses · Medical jurisprudence · Medical malpractice · Medicare · Mediey Imedliy I · Mediterranean passport · Meeting of creditors · Meeting of minds · Megalopolis · Meilicke system · Meister v · Member bank · Member firm · Member of a jury of matrons · Member of Congress · Member of Parliament · Member of the clergy · Membrana ImembreynM · Memorandum articles · Memorandum check · Memorandum clause · Memorandum decision · Memorandum in error · Memorandum of alteration · Memorandum of association · Memorandum sale · Memorial · Mental alienation · Mental anguish · Mental capacity · Mental capacity or competence · Mental cruelty · Mental disease or defect · Mental reservation · Mental shock · Mental state · Mental suffering · Mercantile agents · MercantUe agencies · MercantUe law · MercantUe Law Amendment Acts · MercantUe paper · Merchandise broker · Merchandise brokers · Merchantability · Merchantable title · Merchant appraiser · Merchants' accounts · Merchant seaman · Merchant Shipping Acts · Merchants Mut · Mercury Ins · Mercy killing · Mere evidence rule · Mere Imer I · Mere licensee · Merely · Mere sufferance · Merger clause · Merger distinguished · Merger of law and equity · Merger of sentences · Meridians · Meritorious cause of action · Meritorious consideration · Meritorious

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defense · Merit system · Merriam v · Mertz v · Merz v · Mese lmiysl · Mesne assignment · Mesne conveyance · Mesne Incumbrance · Mesne lord · Mesne process · Mesne profits · Message · MetaboHsm · Metal Co · Meter rate · Methadone · Methamphetamine · Methodist Church of Sturgis Inc · Metropolitan Arroyo Flood Control Authority v · Metropolitan COUllcU · Metropolitan district · Metropolitan Life Ins · Metropolitan Water Dist · MexIcan conveyances to pass title to lands · Mexican divorce · Mexican law · Meyering v · Mfg · Mich · Michalak v · Michigan Miters Mut · Mid-Continent Tel · Middle of the river · Midnight · Midnight deadllne · Midway · Midwife · MIgration · Migratory corporation · MIgratory divorce · MIgratory game · MIleaae tax · MIles Imayliyzl · MIlestones · Military Appeals · MIlltary bounty land · MIlltary commissions · Military discharge · Military Justice · Military la w · MIlitary offenses · MIlitary office · Military officer · Military tenures · Military testament · Mill · Milled money · Miller Act · Miller-Tydings Act · Miller v · Milling in transit · Mill power · Mill privilege · Millrate · Mill site · Milltla I malisha I · Milton v · Mina Imaynal · MInd and memory · MInerai lode · MInerai royalty · MIneral deed · MIneral district · Mineral land entry · Mineral lands · Mineral lease · Mineral leases · Mineral servitude · Miner's inch · Minimal contacts · Mini-maxi · Minimum · Minimum charge · Minimum contacts · Minimum deduction · Minimum fee schedules · Minimum royalty clause · Minimum sentence · Minimum wage · Mining claim · Mining Co · Mining district · Mining law · Mining lease · Mining location · Mining partnership · Ministerial act · MInisterial duty · MInisterial function · Ministerial office · MInisterial officer · Ministerial power · Ministerial powers · Ministerial trust · Ministerial trusts · Minn · Minor deviation rule · Minor dispute · MInor fact · Minority opinion · MInority stockholder · Minor offenses · MInors' estates · Mintage lminbj I · MInt-mark · MInt-master · MInutes book · Minute tithes · MIranda hearing · Miranda Rule · Misa I mayza I · Misbranding · Misc · Miscarriage of justice · Miscegenation Imasejaneyshanl misaja I · Mischarge · Misconduct in office · Miscreant lmiskriyantl · Misdelivery or nondelivery · Misdemeanant lmisdamiynantl · Misdemeanor lmisdamiynar I · Mise-money · Mislaid property · Misprision of felony · Misprision of treason · Miss · Missions · Missouri pac · Mister · Misuser lmisyUwzar I · Mitchell v · Mitigating circumstances · Mitigation of damages · Mitigation of punishment · Mixed blood · Mixed government · MIxed Insurance company · Mixed larceny · MIxed laws · Mixed marriage · Mixed policy · Mixed property · MIxed question of law and fact · MIxed questions · MIxed subjects of property · Mixed tithes · Mixed trust · Mixed war · Mkldleman · MIdsummer-day · Mlle · MInenlI right · M'Naghten Rule · Mo · Mobil Oil Corp · Mock · Modal legacy · Mode · Model act · Model Bus · Model jury instructions · Moiety acts · Moines Union Ry · Monarchial · Monetary · Monetary bequest · Money · Money-bDl · Money changers · Money claims · Money counts · Moneyed corporation · Money had and received · Money judgment · Money land · Money lent · Money made · Money market · Money of adieu · Money order · Money-order office · Money paid · Money-purchase plan · Money scrivener · Money which is a legal tender in paySee Legal tender · Monocracy Imanomsiy I · Monogamy I manogamiy I · Monomachy I manomakiy I · Monopoly power · Monopsony · Mont · Montgomery Ward and Co · Month to month lease · Montpelier v · Monument

Monung · Moonshine · Moore v · Moot · Moot court · Moot hill · Moot man · Moral · Moral actions · Moral certainty · Moral consideration · Moral considerations · Moral duress · Moral evidence · Moral fraud · Moral hazard · Moral obligation · Moral turpitude · More commonly used by the old writers than feudal · More favorable terms clause · Moreover · Morgan v · Mormon · Morning loan · Moron · Morris v · Mortal · Mortality tables · Mortg · Mortgage banker · Mortgage bond · Mortgage broker · Mortgage certificate · Mortgage clause · Mortgage commitment · Mortgage company · Mortgage contingency clause · Mortgagee in possession · Mortgage foreclosure · Mortgage Guarantee Co · Mortgage guarantee insurance · Mortgage Hen · Mortgage insurance · Mortgage loan · Mortgage note · Mortgage of goods · Mortgaging out · Mortmain acts · Moses · Moslem Law · Most favored nation clause · Most states have adopted the Uniform Criminal Extradition Act · Most suitable use valuation · Mother-in-law · Motion for judgment notwithstanding verdict · Motion for judgment on pleadlngs · Motion for more deflnite statement · Motion for new trial · Motion In bar · Motion In limine · Motion to dismiss · Motion to strike · Motion to suppress · Motor Car Co · Motor Co · Mounsey v · Mount Hood R · Mouth of river · Movable estate · Movable freehold · Movable property · Movant

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· Move · Movement of loaded freight car one mile · Move out · Moving papers · Moye v · Mrs · Mug book · Mugshot · MUitary courts · Mulholland v · Mullins Mfg · MUltary feuds · Multicraft union · Multidistrict litigation · Multilateral agreement · Multinational · Multipartite I maltiypartayt I · Multiple access · Multiple counts · Multiple evidence · Multiple listing · Multiple offenses · Multiple-party accounts · Multiple sentences · Munafo v · Municipal action · Municipal affairs · Municipal ald · Municipal authorities · Municipal bond · Municipal bonds · Municipal charter · Municipal corporation de facto · Municipal corporations · Municipal courts · Municipal domicile · Municipal election · Municipal function · Municipal government · Municipalities · Municipal law · Municipal lien · Municipal officer · Municipal ordinance · Municipal purposes · Municipal securities · Municipal warrants · Munn v · Munro v · Munson v · Murphy · Must · Muster · Muster-roll · Musto-Keenan Co · Mut · Mutilated ballot · Mutiny Act · Mutual accounts · Mutual affray · Mutual agreement · Mutual and reciprocal will · Mutual assent · Mutual Ben · Mutual benefit association · Mutual benefit insurance · Mutual company · Mutual debts · Mutual demands · Mutual insurance · Mutual insurance company · Mutuality doctrine · Mutuality of obligation · Mutuality of remedy · Mutual Life Ins · Mutual mistake · Mutual promises · Mutual relief association · Mutual reserve company · Mutual savings bank · Mutual testaments · Mutual will · Mutual wills · Mutuari ImyUwchuweray I · Mysterious disappearance · Mystic will

## N

NA · Naches-Selah Irr · Nagel v · Naked authority · Naked options · Naked possession · Naked possibility · Naked power · Naked promise · Naked trust · Nam · Name and arms clause · Named insured · Namely · Names are the notes of things · Nan · NAR · Narcoanalysis · Narcotic · Nardi v · Narr · Narr and cognovit law · Narrative evidence · NASD · Nash v · Nat · Natcher v · National · National Aeronautics and Space AdministraNASA · National Association of Realtors · National bank · National City Bank V · National debt · National defense · National domain · National domicile · National emergency · National government · National Guard · National Labor Relations Act · National Labor Relations Board · National Labor Relations Board v · National law · National Mediation Board · National Memorial Park v · National origin · National Railroad Passenger Corporation · National service life insurance · National Service Ufe Insurance · National Traffic Safety Board · National union · Nation and has been so designated pursuant to statute · NationaUty Act · Native born · Nativi de stipite Inatayvay diy stipadiy I · Nativitas Inativaues I · Nativo habendo Inatayvow habendow I · Natural · Natural affection · Natural allegiance · Natural-born subject · Natural boundary · Natural channel · Natural child · Natural day · Natural death · Natural Death Acts · Natural domicile · Natural equity · Natural flood channel · Natural fruits · Natural Gas Act · Natural guardian · Natural heirs · Naturalization clause · Naturalization courts · Natural law · Natural liberty · Natural monopoly · Natural monument · Natural object of testator's bounty · Natural or civil obligation · Natural possession · Natural premium · Natural resources · Natural rights · Natural succession · Natural Ufe · Natural water course · Natural year · Naulage Inoleyj I · Nautical assessors · Nautical mile · Nautical or maritime interest · Nav · Naval base · Naval law · Navigable In fact · Navigable river or stream · Navigable waters · Navigable waters of the United States · Navigational visibility · Navigation servitude · Navy Department · Neap tides · Near · Near money · Neb · Ne baila pas Ina beyla pal · Necation · Necessarily included offense · Necessary and indispensible parties · Necessary and proper · Necessary and proper clause · Necessary and proper powers · Necessary damages · Necessary diligence · Necessary domicile · Necessary inference · Necessary parties · Need · Needful · Needy · Nees v · Negative averment · Negative condition · Negative covenant · Negative easement · Negative evidence · Negative misprision · Negative plea · Negative pregnant · Negative proof · Negative reprisals · Negative statute · Negative testimony · NeggUdare · Neglected child · Neglected minor · Neglect to use · Negligence in law · Negligence per se · Negligent · Negligent homicide · Negligentia semper habet infortunium comitem Ineg · Negligently · Negligently done · Negligent manslaughter · Negligent offense · Negligent violation of statute · Negotiable bill · Negotiable bond · Negotiable document

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of title · Negotiable instruments · Negotiable note · Negotiable Order of Withdrawal · Negotiable words · Negotiated plea · Neighbor · Nelson v · Nemine contra dicente · Nemo tenetur divinare Iniymow bniydar divaneriy I · NeNecessities · Nepos Inepos Iniypowsl · Net assets · Net asset value · Net balance · Net cost · Net earnings · Net estate · Netherlands · Net income · Net interest · Net lease · Net level annual premium · Net listing · Net loss · Net national product · Net-net-net lease · Net operating assets · Net operating income · Net operating loss · Net position · Net premium · Net price · Net proceeds · Net profit · Net profits · Net rent · Net return · Net revenues · Net sale · Net sale contract · Net sales · Net single premium · Net tonnage · Net value · Net weight · Net worth · Net worth method · Net yield · Neurology · Neutrality laws · Neutrality proclamation · Neutralization · Neutral property · Nev · Never executor · Never indebted · New acquisition · New and useful · Newark Stove CO · Newark v · New assets · New assignment · Newbern v · New cause of action · New for old · New Hampshire Water Resources Bd · New inn · New issue · Newly-discovered evidence · New matter · New Orleans v · New promise · Newsman's privilege · New statutes · New trial · New works · New York · New York Cent · New York interest · New York Stock Exchange · New York Times v · New York Trust Co · New York Underwriters Ins · New York v · Next eventual estate · Next friend · Next in relation to cause and effect · Next of kin · Next presentation · Nicholson v · NIFO · Nighttime · Night walkers · Nihil dicit · Nil dicit judgment · Niles v · Nimble dividend · Nineteenth Amendment · Ninth Amendment · Nisei Iniysey I · Nisi decree · Nisi Imiysay I · Nissen v · NKA · No · No-action clause · No-action letter · No award · Nobility · No bonus clause · No contest clause · Noel v · No evidence · No eyewitness rule · No fault · No-fault auto insurance · No-fault divorce · No fault insurance · No funds · No goods · No limit order · No-load fund · Nominal · Nominal account · Nominal assets · Nominal capital · Nominal consideration · Nominal damages · Nominal defendant · Nominal interest · Nominal interest rate · Nominal partner · Nominal party · Nominal trust · Nomination paper · Nomination to a living · Nominee trust · Nonacquiescence · Non-ancestral estate · Non-assessable · Nonassessable insurance · Nonassessable stock · Non-bailable · Non-business bad debt · Non-claim · Noncommissioned officer in armed forces · Nonconforming lot

Nonconforming use · Non constat Inon konSbtl · Non-contestable clause · Non-continuous easement · Noncontribution clause · Noncontributory plan · Non-cumulative · Noncumulative dividends · Noncumulative preferred stock · Noncumulative stock · Non-delivery · Non-detachable facilities · Non-disclosure · Non-discretionary trust · Non est novum ut priores leges ad posteriores trahantur · Non-forfeitable · Non-freehold estates · Non-functional · Noninsurable risk · Non-intercourse · Non-judicial day · Non-marketable security · Non-medical policy · Non-merchantable title · Non-navigable · Non-negotiable bill · Non obstante veredicto · Non-occupational · Nonoperating income · Non-profit corporation · Non pros · Nonqualified deferred compensation plans · Non-qualified stock option · Nonrecourse · Nonrecourse loan · Non-resident alien · Non-resident decedent · Non-resident motorist statutes · Non-stock corporation · Non submissit I non sabmisatl · Non-support · Nontaxable exchange · Non-technical sense · Non tenuit Inon tenyuwatl · Non-violent crimes · Nonvoting stock · Non-waiver agreement · N o one can have a servitude over his own property · No one can owe to himself · No one dissenting · No one is above the law · No one is bound to an impossibility · No one is bound to do the impossible · No one is entitled to take the law into his own hands · No one is presumed to be bad · No one is presumed to give · No one is the heir of a living person · No par · No par stock · No par value · No protest · No recourse · Normal law · Normally · Normal mind · Normal school · Normal tax · Norman law · Norman period which rested upon royal grants--often assumed · Norris-La Guardia Act · Norroy · North · Northchester Corporation v · Northeast v · Northern Liberties · Northern Pac · Northern Securities Co · Northwestern Imp · Northwest territory · No-strike clause · Notarial acts · Notarial will · Notation credit · Not certainly known or determined · Note broker · Note of a fine · Note of allowance · Note of hand · Note of protest · Note or memorandum · Notes payable · Notes receivable · Noteworthy happening or occurrence · Not exceeding · Not-for-profit corporation · Nothing in arrear · Nothing is more unjust than to extend equity too far · Nothing is perfect while anYthing remains to be done · Notice acts · Notice of action · Notice of appeal · Notice of appearance · Notice of dishonor · Notice

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of issue · Notice of lis pendens · Notice of motion · Notice of orders or judgments · Notice of protest · Notice of trial · Notice race statutes · Notice recording statutes · Notice sufficient to permit an objection or defense · Notice to appear · Notice to creditors · Notice to plead · Notice to quit · Notification · Not later than · Not less than · Notorious cohabitation · Notorious insolvency · Notorious possession · Not partially · Not pregnant · Not synonymous with illiterate · Not to be performed within one year · Not true · Not uniform · Notwithstanding · Notwithstanding the verdict · Notwithstanding verdict · Novation is not presumed · Now · Now known as · Nowland Realty Co · Now obsolete · Nude contract · Nude matter · Nude pact · Nudum pactum · Nugent v · Nuisance at law · Nuisance in fact · Nul · Nulle terre sans seigneur Inyul ter son seynyur I · Nullification · Nullity of marriage · Nul tiel record · Nul tort · Nul waste · Numbers game · Numerical lottery · Nummata terre Inameyda tehriy I · Nuncupative wDl · Nunez v · Nursing Home Bldg · Nymphomania

# O

Oak Park Ave · OASDI · Oath against bribery · Oath of supremacy · Oath-rite · Obedience is the essence of the law · Obediential obligation · Objection · Objectionable or offensive to accepted standards of decency · Objection to jury · Objection to order or ruling of trial court · Objective symptom · Object of an action · Object of a statute · Objects of a power · Oblate · Oblate Rolls · Oblation · Obligation of a contract · Obligation solidaire lobligasyown solider I · Obligatory pact · Obligatory rights · Obligatory writlng · Obliterated corner · Oblivion · Oblivious · Obloquy Ioblakwiy I · Obnoxious · ObObsignare lobsigneriy I · O'Brien v · Obrogation · Obscene libel · Obscure · Obsolescence · Obstinate desertion · Obstruct · Obstructed by a bar · Obstructing justice · Obstructing mails · Obstructing proceedings of legislature · Obstruction to navigation · Obtaining money or property by false pretenses · ObUterated comer · Obvious · Obvious danger · Obvious risk · Occupational · Occupational disease · Occupational hazard · Occupational Safety and Health Act · Occupational Safety and Health Administration · Occupational Safety and Health Review Commission · Occupation of shoeing horses · Occupation tax · Occupative · Occupying claimant · Occur · Occurring every two years · Ocean bill · Odd lot · Odd lot doctrine · Odd lot order · Odius things are not presumed · Odom v · O'Donnell v · Oetjen v · Of age · Of false money · Off-board · Offender · Offensive and defensive league · Offensive language · Offensive weapon · Offer · Offer and acceptance · Offeree · Offering · Offering circular · Offering made to clergyman · Offering statement · Offer of compromise · Offer of judgment · Offer of proof · Offeror · Office audit · Office block ballot · Office book · Office copy · Office grant · Office held by an executor · Office hours · Office of honor · Office of judge · Office or public function · Officer · Officer de facto · Officer de jure · Officer of justice · Officer of the United States · Officer who has command in armed forces · Official act · Official ballot · Official bond · Official Gazette · Official immunity doctrine · Official map · Official misconduct · Official newspaper · Official oath · Official record · Official Records Act · Official reports or reporters · Official use · Officious will IQfishQS will · Officlalty · Offset account · Off-year election · Of judge · Of kin · Of law and of right · Of necessity · Of or belonging to females · Of or pertaining to the United States · Of positive law · Of pure necessity · Of right · Of secondary importance · Of suit to a mill · Often abbreviated to Brev · Of the bench · Of the blood · Of theft · Of the goods not administered · Of the masculine sex · Of the other part · Of the same species or category · Of unsound mind · Of victuals to be used · O'Hara v · O'Hare v · Ohio · Ohio App · Ohio Bell Tel · Ohio Casualty Ins · Ohio Dec · Ohio Misc · Ohio St · Oil Co · Oil Mill of Waco v · Okay · Okl · Oklahoma City v · Oklahoma Natural Gas Corporation v · Oklahoma Ry · Oklahoma Tax Commission v · Old conveyancing · Old English criminal law · Old English law · Old European law · Old line Ufe insurance · Oliver Cromwell was declared protector · Omaha Ins · Omest · Omission · Omne crimen ebrietas et incendit et detegit · OmnIbus clause · Omnibus count · Omnibus hearing · On · On account · On account of failure of blood · On account of inability · On account of respect of honor or rank · On account of whom It may concern · On all fours · On board bill · Once a citizen always a citizen · One conducted by company personOffice a udit · One descendible to heirs on the paternal side only · One drawn by one bank on another · One hundred · O'Neill v · One indiscriminately of whatever kind or quantity · One made without

consideration · One month liquidation · One of the civilized Indian tribes · One of the sources of the unwritten law of Rome · One of the territorial divisions of a country · One of the weapons allowed in a trial by combat · One person can scarcely supply the place of two · Onerous contract · Onerous gilt · Onerous title · One sided · One that directs a levy upon some special property · One that may be freely made the subject of resale · One that proceeds on formal pleadings · O'ne time and the beginning of another · One to whom a grant is made · One to whom a promise has been made · One which claims function · One which conveys no property to the purchaser of the estate · One which creates forfeiture or imposes penalty · One which is in abeyance · One which puts an end to a case · One who attests or vouches for · One who collects tribute or taxes · One who commits barratry · One who commits burglary · One who commits slander · One who creates a trust · One who derives his or her main support from another · One who directs or supervises the policies · One who dissents · One who files a caveat · One who first employs hostile force · One who gathers tithes · One who gives and yet retains does not give effectually · One who has a lien on two funds · One who has killed his father · One who holds supreme or highest command of armed forces · One who invents or has invented · One who is in default · One who makes an avowry · One who makes a warranty · One who numbers or counts · One who solicits for prostitute · One year · Only · Onset date · On the back · On the other side · On the person · OPEC · Open a case · Open account · Open a commission · Open a court · Open a judgment · Open and notorious · Open and notorious adultery · Open a rule · Open a street or highway · Open bid · Open bulk · Open court · Open credit · Open end contract · Open-end credit · Open-end investment company · Open-end investment trust · Open-end mortgage · Open-end transaction · Open entry · Opening statement of counsel · Open letter of credit · Open listing · Open market · Open mortgage clause · Open order · Open policy · Open possession · Open price term · Open sea · Open season · Open shop · Open space · Open the door · Open union · Open verdict · Operate · Operating expenses · Operating income · Operating margin · Operating profit · Operating surplus · Operation of law · Operative words · Operative words in conveyances of real estate · Opiate · OPIC · Opinion · Opinion evidence or testimony · Opinions written out · Opposite party · Optionee · Option to pay before maturity on call · Option to purchase · Oral argument · Oral confession · Oral contract · Oral deposition · Oral evidence · Oral pleading · Oral trust · Order bID of lacUna · Order bill · Order of coif · Order of the coif · Order to show cause

Ordinance distinguished · Ordinary and extraordinary floods · Ordinary calling · Ordinary course of business · Ordinary dangers incident to employment · Ordinary expense · Ordinary expenses · Ordinary income · Ordinary interest · Ordinary life insurance · Ordinary loss · Ordinary negligence · Ordinary persons · Ordinary proceeding · Ordinary proceedings · Ordinary repairs · Ordinary risk · Ordinary risks · Ordinary seaman · Ordinary skill in an art · Ordinary written law · Ordination · Oregon Auto · Ore tenus rule · OrganIzation · Organization of Petroleum Exporting Countries · Organized crime · Organized labor · OrIgIDaI lssue · Original appropriator · Original bill · Original bill praying relief · Original contractor · Original conveyances · Original cost method · Original entry · Original estates · Original evidence · Original inventor · Original jurisdiction · Originally · Originally a nickname for the Irish in Ulster · Original package · Original package doctrine · Original plat · Original process · Original promise · Original was returnable · Original writ · Orleans v · ORP · Orphan's courts · Orphan's deduction · Orpnfc Act · OSHA · Ostensible authority · Ostensible ownership · Oswego Falls Corporation v · Other · Other distinctions are made in the old books · Other things · Otherwise · Otter Tail Power Co · Otte v · Ouster of jurisdiction · OutbuDding · Out-buildings · Outcome test · Outer continental shelf · Outer door · Outgo · Outland · Outlawed · Outlawry has long been obsolete · Outline · Out of abundant caution · Out of benefit · Out-of-court settlement · Out of pocket expenses · Out-of-pocket loss · Out-of-pocket rule · Out of the realm · Out ot the state · Out ot time · Output contract · Outright · Outroper lawtrowpar I · Outs · Outside · Outside director · Outside salesmen · Outstanding and open account · Outstanding security · Outstanding stock · Outstanding warrant · Outstroke · Overbreadth doctrine · Overcharge · Overcome · Overdraft · Overflowed lands · Overhead · Over-insurance · Overload · Overlying right · Overrate · Override · Overriding royalty · Overs · Oversamessa · Overseas bill · Overseers of highways

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· Oversubscription · Over-swearing · Overt act · Overtake · Over-the-counter market · Overthrow of government · Overtime · Overtime wage · Overt word · Ovitron Corp · Owe · Owelty of exchange · Owelty of partition · Owelty of services · Own · Ownership of property is either absolute or qualified · Ownership rights which are protected in equity · Oxgang

## P

Pa · Pac · Pacific Finance Corporation of California v · Pacific Indem · Pacific Mut · Package mortgage · PackIDg Ust · PacltlcatIon · PacltIlt · Padding in shipping container to prevent breakage · Padgett v · Paducah v · Paid-in-capital · Paid-in-surplus · Paid-up insurance · Paid-up policy · Paid-up stock · PaImIDa off doctrine · Pain and suffering · PaIsgraf doctrine · Palermo v · Palimony · Palle v · Palmer v · Palm off · Palm prints · Palpable · PaIsgraf v · Pandects in the Justinian collections of the civil law · Pandects of Justinian · Pander · Panderer · Pandering is established when · Pandering of obscenity · Papal supremacy · Paper money · Paper money issued for temporary use · Paper patent · Paper profit · Paper standard · Paper title · Papian poppean law · Papla Poppea · Paralegal · Parallel citation · Paramount equity · Paramount title · Paramour · Paraph · Paraprofessional · Parcels · Pardon · Pardon attomey · Parentage · Parental liability · Parental rights · Parental UabUlty · Parent-chlld Immunity · Parent company · Pares regnl IpZriyz regnay I · ParHamentary law · ParHamentary taxes · Paris · Parish apprentice · Parish church · Parish court · Par Items · Parity · Parity ratio · Parker v · Parliamentary agents · Parliamentary committee · Parliamentary divorce · Parliamentary law · Par of exchange · Parol agreements · Parol arrest · Parol contract · Parol demurrer · Parole board · Parolee · Parole officers · Parol evidence · Parol evidence rule · Parol lease · Parol promise · Parson mortal · Parsons v · Partage I partazh I · Partial account · Partial average · Partial defense · Partial dependency · Partial disability · Partial eviction · Partial evidence · Partial incapacity · PartIal limitation · Partial loss · Partial pardon · Partial payment · Partial payments on account of a debt due · Partial release · Partial taking · Partial verdict · Partible lands · Particeps I pardaseps I · Participate I partisapeytI · Participating · Participating insurance · Participating policy · Participation · Participation loan · Participation mortgage · Participation preferred stock · Participation stock · Particularity · Particular llen · Particular malice · Particular or special · Particular partnership · Particulars of breaches and objections · Particulars of criminal charges · Particulars of sale · Particular tenant · Parties and privies · Parties in interest · Parties to crime · Partisan · Partition of a succession · PartJal liquida tion · Partnership agreement · Partnership articles · Partnership assets · Partnership association · Partnership at will · Partnership certificate · Partnership debt · Partnership in commendam · Partnership insurance · Part owners · Part payment · Part performance · Party aggrieved · Party column ballot · Party of United States of America v · Party to be charged · Party wall · ParUament · ParUamentary · Par value · Par value stock · Passaic County v · Passed dividend · PasseDler · Passenger mile · Passing of title from seller to buyer for a price · Passive · Passive bond · Passive debt · Passive negligence · Passive trust · Passive use · Past consideration · Past due and unpaid taxes · Past recollection recorded · Patapsco Guano Co · Patent ambiguity · Patent and copyright clause · Patent and Trademark Office · Patent appeals · Patent defect · Patent law · Patent medicine · Patent pooling · Patent-right · Patent-right dealer · Patents · Patent suit · Patent writ · Paternal line · Paternal power · Paternal property · Paternity sult · Pathologist · Patient · Patient-physician privilege · Patruus I paetruwa I · Pattern · Pauper's oath · Payable after sight · Payable on demand · Payable to bearer · Payable to order · Pay any bank · Paying quantities · Paymasters · Payment bond · Payment guaranteed · Payment into court · Payment is a plea in avoidance · Payment or forfeiture of an animal · Payments · Payne v · Payor · Payor bank · Payroll tax · Pazen v · PBGC · Peaceable possession · Peace and quietude · Peace bond · Peace officers · Peace of God and the church · Peacock v · Pecuniary benefits · Pecuniary bequest · Pecuniary causes · Pecuniary condition · Pecuniary consideration · Pecuniary damages · Pecuniary formulas · Pecuniary injury · Pecuniary interest · Pecuniary legacy · Pecuniary loss · Pedal possession · Peddler · Pedestrian · Peeping tom · Peers of the realm · Peg · Penal · Penal action · Penal bill · Penal bond · Penal clause · Penal code · Penal Institutions · Penal laws ·

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Penal servitude · Penal statute · Penal statutes · Penal sum · Penalty · Penalty clause · Pen Co · Pendente lite I pendentiy hiydiy I · Pendent jurisdiction · Pending or during the time that · Penn · Pennissive use · Penn Mut · Pennoyer Rule · Pennoyer v · Penn Proprietors and Lord Baltimore · Pennsylvania R · Pennsylvania Rule · Penn v · Penny stock · Penny stocks · Penology · Pen register · Pension Benefit Guaranty Corporation · Pension plan · Pension trust · Penumbra doctrine · People ex rel · Peoples Home v · Peoples Nat · People v · Per cent · Percentage lease · Percentage of completion method · Percentage order · Perch · Percolating waters · Percolation test · Percy Wilson Mortg · Peremptory challenge · Peremptory day · Peremptory defense · Peremptory exceptions · Peremptory instruction · Peremptory pleas · Peremptory rule · Peremptory undertaking · Peremptory writ · Perfect attestation clause · Perfected · Perfect equity · Perfecting bail · Perfect instrument · Perfect or imperfect obligation · Perfect or perfected · Perfect title · Perfect trust · Perfect usufruct · Perfect war · Performance bond

Periodic · Periodic alimony · Periodic tenancy · Peripheral rights · Perishable · Perishable commodity · Perishable goods · Perkins v · Perks · Permanent abode · Permanent alimony · Permanent disability · Permanent employment · Permanent injunction · Permanent injury · Permanent law · Permanent nuisance · Permanent trespass · Permissive counterclaim · Permissive joinder · Permissive use · Permissive waste · Permit card · Permits goods to be unloaded from ship · Perpetration · Perpetual edict · Perpetual injunction · Perpetual lease · Perpetual statute · Perpetual succession · Perpetual trust · Per se doctrine · Per se negligence · Per se violations · Person aggrieved · Personal action · Personal assets · Personal bond · Personal chattel · Personal check · Personal contract · Personal defense · Personal demand · Personal effects · Personal holding company · Personal holding company tax · Personal IiabWty · Personal Income · Personal injury · Personal judgment · Personal jurisdiction · Personal knowledge · Personal liberty · Personal loan · Personal notice · Personal or heritable obligation · Personal or real obligation · Personal property · Personal property tax · Personal recognlzanee · Personal replevin · Personal representative · Personal security · Personal service · Personal statutes · Personal tax · Personal tithes · Personal tort · Personal trust · Personal warranty · Personero lpersownerow I · Person in possession · Persons · Persons taken by plrates or robbers remain free · Persons who are habitually insane · Persons who are sued and tried together · Person under disabWty · Person who holds stake in gambling game or wager · Persuade · Pertaining or relating to a nation as a whole · Pertaining to a horse · Pertaining to a royal court · Per ton duty or charge on cargo · PerU · PerUs of the lakes · PerUs of the sea · Per year · Peter-pence · Petersen v · Peterson v · Petition In bankruptcy · Petition of right · Petition of rights · Petit jury · Petit larceny · Petit treason · Petronian law · Petty cash · Petty larceny · Petty offense · Petty omcers · Peyote · Pharmacy v · Phil · Phillips v · Phobia · Phylaslst · Physical · Physical cruelty · Physical depreciation · Physical disability · Physical fact · Physical fact rule · Physical force · Physical harm · Physical impossibility · Physical incapacity · Physical injury · Physical necessity · Physical shock · Physician · Physician-patient prlvDege · PIcketing · Pickett v · PIck of land · Picture Mach · PIecework · Pierson v · Pimp · Pinkerton v · Piracy and privateering are federal offenses · Pirates and robbers at sea · Pistol · Pittinger v · Pittsburgh Comm · Place lands · Placement · Place of abode · Place of business · Place ot contract · Place ot deUvery · Place ot employment · Placer claim · Placer location · Place where · Place where remedy is pursued · PlaID view doctrine · Plain error rule · Plaintiff in error · Plaintiff or complainant · Plaint Ipleyntl · Planned Parenthood Ass'n v · Planned Unit Development · Plant assets · Plant patent · Platform · Plat map · Plea agreement · Plea agreements · Plea bargaining · Pleading and practice · Plead over · Plea entered by the accused to criminal charge · Plea In abatement · Plea in bar · Plea in discharge · Plea in reconvention · Plea negotiations · Plea of confession and avoidance · Plea of guilty · Plea of privllege · Plea of release · Pledges · PledRe · Plenary action · Plenary confession · Plenary jurisdiction · Plenary powers · Plenary session · Plene Ipliyniy I · PlerciDg corporate veil · Ploneer patent · Plot · Plow back · Plumbing and Heating Co · Plunderage · Plural marriage · Pluries tl · Plymouth Mfg · Pocket veto · Poff v · Point in will at which dispositive provisions terminate · Point reserved · Points · Point system · Poisonous tree doctrine · Polar star rule · Police court · Police Jury · Police Justice · Police maatstrate · Police

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officer · Police power · Policyholder · Policy loan · Policy value · Policy year · Political corporation · Political crime · Political Jaw · Political law · Political liberty · Political offenses · Political office · Political party · Political question · Political questions · Political rights · Political subdivision · Political trial · Polley · Polling of jury · Pollute · Polson · Poltmalter · POltmaster leneral · Poltnatl I pOwstneyday I · Polygarchy I polagarkiy I · Polygraph · Polyopsony · Polypoly · Pomerene Act · Pondus I pondas I · Pooling of interests · Poor debtor's oath · Poplar Bluff Loan and Bldg · Popular actions · Pornographic · Portal-to-Portal Act · Port authority · Porter v · PortfoUo · Portion disponible · Portland Cement Co · Port of call · Port of delivery · Port of departure · Port of destination · Port of discharge · Port of entry · Port-risk · Port risk insurance · Portsale · Port toll · Portugal · Positive evidence · Positive misprision · Positive proof · Positive reprisals · Positive testimony · Positive wrong · Possessing larger power · Possession in good faith · Possession Is nine-tenths of the law · Possessory claim · Possessory interest · Possessory lien · Possessory warrant · Possibility coupled with an interest · Possibility of reverter · Possibility on a possibility · Post-act · Postal currency · Postal order · Postal Service · Post-conviction remedies · Post-convlction review · Post-dated check · Posted waters · Posthumous · Posting · Post-notes Ipowstnowtsl · Post-nuptial agreement · Post-nuptial settlement · Post-obit · Post-trial discovery · Post-trial motions · Post-trial remedies · Pot · Potable · Potomac mortgages · Pound · Poundage fees · Pound breach · Pour acquit · Pour appuyer · Pour appuyer nouvelle demande · Pour autrul · Pour compte de qui n appartient · Pour falre proclaimer

Pour-over · Pour-over trust · Pour-over wUl · Poverty · Power Co · Power coupled with an interest · Power exerted over others · Power of alienation · Power of appointment trust · Power of revocation · Power of termination · Power or authority · Powers in gross · Power Transmission Equipment Corp · Practice and pleading · Practice of law · Practice of medicine · PraIrie Ipreriy I · Prayer · Prayer for relief · Prayer of process · Pray In aid · Preappolnted evidence · Prebendary Iprebandery I · Precarie IprakeriyiyI or preces I priysiyz I · Precarlous loan · Precarlous possession · Precarlous trade · Precatory trust · Precatory words · Preces prlmariJe Ipriysiyz prameriyiyI · Precinct Ipriysigktl · Precise I pnsays I · Preclput · Preclusion order · Preconceived malice · Predatory intent · Predial tithes · Pre-emption claimant · Pre-emption doctrine · Pre-emption entry · Pre-emption right · Preemptive powers · Pre-emptive right · Prefectus ville Iprnfekbs Vlliy I · Preference share · Preferential assignment · Preferential claim · Preferential debts · Preferential dividend · Preferential tariff · Preferential transfer · Preferred creditor · Preferred dividend · Preferred dockets · Preferred stock · Preferred stock bailout · Pregnant · Prejudicial error · Prejudicial pubUcity · Prejuramentum I priyj urnmenbm I · Preliminary complaint · Preliminary evidence · Preliminary examination · Preliminary hearing · Preliminary injunction · Preliminary proof · Preliminary warrant · Premeditated design · Premeditatedly · Premeditated malice · Premeditation · Premises · Premium bond · Premium loan · Premium note · Premium stock · Premium tax · Premunire Ipriymyuwnayriy I · Prenatal injuries · Pre-nuptial agreement · Prep · Prepaid expense · Prepaid income · Prepaid legal services · Preparation · Prepare · Prepayment penalty · Prepayments · Preponderance of evidence · Preponderance of the evidence · Prerogative court · Prerogative law · Prerogative writs · Presbyterian Church in Pencader Hundred v · Presbyterianism · Prescription · Prescription in a que estate · Prescriptive easement · Presence of an officer · Presence of defendant · Presence of the court · Presence of the testator · Present ability · Presentation is the offering a clerk to the bishop · Presentation of such excuse · Present danger test · Pre-sentence hearing · Pre-sentence investigation · Pre-sentence report · Present enjoyment · Present estate · Presenting bank · Present interest · Present recollection recorded · Present recollection revived · Present sale · Present time · Present use · Presidential election · Presidential powers · Presidential Proclamations No · President of the Queen's Bench Division · President of the United States · President's message · President through the Secretary of State · Press Mfg · Presumably · Presume · Presumed intent · Presumption of death · Presumption of innocence · Presumption of legitimacy · Presumption of survivorship · Presumptions distinguished · Presumptions of fact · Presumptions of law · Presumptive authority · Presumptive damages · Presumptive dea th · Presumptive evidence · Presumptive sentence · Presumptive title · Presumptive trust ·

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Pretermission · Pretermission statute · Pretermitted defense · Pretext · Pre-trial conference · Pre-trial discovery · Pre-trial diversion · Pre-trial hearing · Pre-trial order · Prettyman v · Prevail · Prevailing party · Prevention is better than cure · Preventive detention · Preventive injunction · Previous · Previously taxed income · Price current · Price discrimination · Price earnings ratio · Price-fixing · Price index · Price leadership · Price level accounting · Price supports · Price v · Priest-penitent privilege · Prima facie case · Prima facie evidence · Prima facie tort · Primary activity · Primary allegation · Primary beneficiary · Primary boycott · Primary conveyances · Primary disposal of the soU · Primary election · PrImary evidence · PrImary jurisdiction · Primary liability · PrImary market · Primary obligation · Primary or secondary obligation · PrImary powers · PrImary purpose · Prime contractor · Prime cost · Prime maker · Prime minister · Prime rate · Primer seisin · Prime serjeant Ipraym sarjantl · Prince · Principal and accessory · Principal and a uxiliary · Principal and surety · Principal creditor · Principal establishment · Principal fact · Principal in the first degree · Principal in the second degree · Principal office · Principal or accessory obligation · Printers Ink Statute · Printing Co · Prior art · Prior creditor · Prior inconsistent statements · Prior in point of time · Priority · Priority of liens · Prior jeopardy · Prior lien · Prior restraint · PrIor use doctrine · Prisoner of war · Privacy acts · Private agent · Private annuity · Private bank · Private bID · Private bill · Private boundary · Private business · Private carrier · Private chapels · Private compacts cannot derogate from public right · Privateer Ipraywtirl · Private foundations · Private inconvenience is made up for by public benefit · Private injuries · Private land grant · PrIvate letter ruling · PrIvate lntematlonal law · PrIvate nuisance · PrIvate offering · Private offerings · Private or public easements · PrIvate person · PrIvate placement · Private pond · Private property · Private prosecutor · Private rights · PrIvate ruling · Private school · Private seal · Private statute · Private stream · Private trust · Private war · Private waters · Private way · Private wharf · Private wrong · Privation by fraud · Privilege against self-incrimination · PrIvileged communications · Privileged copyholds · Privileged debt · Privilege from arrest · Privilege tax · Privity of blood · Privity of contract · Privity of estate · Privity of posseSSion · PrIvity or knowledge · Privy Council · PrIvy councillor · PrIvy councU · Privy purse · PrIvy seal · Privy verdict · Prize courts · Prize goods · Prize law · Prize money · Prledo Ipriydow I · PrIvlleae · PrIvUege against self-incrimination · PrIvUeged · PrIvUeged communications · PrIvUeged copyholds · PrIvUeged debts · PrIvUeged evidence · PrIvUeged vessel · PrIvUeges and Immunities clause · Probable cause · Probable cause hearing · Probable consequence · Probable evidence · Probably · Probate assets · Probate bond · Probate code · Probate court

Probate duty · Probate homestead · Probate Jurisdiction · Probate proceeding · Probation distinguished · Probation offtcer · Probative evidence Iprowbadav I · Probative facts · Probus et legalis homo I prowbas et lageylas howmowl · Proc · Procedendo I prowsadendow I · Procedural due process · Procedural law · Process agent · Process of interpleader · Process of law · Process or act of producing · Process patent · Process server · Proces-verbal · Prochein ami Ipnshen amiy I · Proclamation by lord of manor · Proclamation of a fine · Proclamation of rebellion · Procurement · Procurement contract · Procuring cause · Prodigal · Pro dote Iprow dowdiy I · Producer · Producing · Producing cause · Product · Production for commerce · Production of suit · Product liability · Product liability insurance · Product llabUity Insurance · Product market · Products Co · Profess · Professional Association · Professional corporation · Professional responsibility · Proffer · Proffered evidence · Profit · Profit and loss account · Profit and loss statement · Profiteering · Profit margin · Profit-sharing plan · Profound reverence and awe · Progressive tax · Progressive taxation · Pro hac vice Iprow hzk vaysiy I · Prohibit · Prohibitory injunction · Projet de loL A bill in a legislative body · Promise implied in fact · Promise implied in law · Promise of marriage · Promise to pay the debt of another · Promissory estoppel · Promissory fraud · Promissory note · Promissory representation · Promissory warranty · Promote · Promoter · Prompt · Prompt delivery · Promptly · Prompt shipment · Pronepos I prownepos I · Proof beyond a reasonable doubt · Proof evident · Proof evident or presumption great · Proof of claim · Proof of debt · Proof of loss · Proof of service · Proof of will · Proper administration of laws · Proper care · Proper evidence · Proper feuds · Proper Independent advice · Proper lookout · Proper parties · Proper party · Properties Co · Property

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as opposed to income · Property dividend · Property interests · Property law · Property of another · Property owned and used for municipal purposes · Property right · Property settlement · Property tax · Property Tax Appeal Bd · Property torts · Property which is the acquisition of labor · Proportional taxation · Proportional taxes · Proportion or ratio o f expenses t o income · Proposal · Proprietary articles · Proprietary capacity · Proprietary capital · Proprietary chapels · Proprietary duties · Proprietary functions · Proprietary governments · Proprietary interest · Proprietary lease · Proprietary rights · Proprietorship · Propriety of words is the salvation of property · Pro rata clause · Pro-rata distribution clause · Pro retorno habendo · Prosecutions or by police or some other public authority · Prosecutor of the pleas · Pro se Iprow siy I · Prospective damages · Prostitution · Protected person · Protective committee · Protective custody · Protective order · Protective trust · Protest · Protest fee · Proto v · Proved guilty or convicted · Provide · Provided by law · Provident Life and Accident Ins · Provinclalis I pfllvinshiyeyllls I · Provisional committee · Provisional court · Provisional government · Provisional injunction · Provisional remedy · Proviso I pfllvayzow I · Provoke · Provost-Marshal · Proximate cause · Proximate cause distinguished · Proximate consequence or result · Proximate damages · Proximately · Proxy marriage · Proxy statement · Prudent · Prudent Man Rule · Prurient interest · PubHc advocate · PubHc agency · PubHc appointments · PubHeation · Public agent · Public and international law · Public and private · Public attorney · Public a uditor · Public authority · Public beach · Public boundary · Public buDding · Public business · Public chapels · Public character · Public charge · Public charity · Public contract · Public convenience and necessity · Public corporations · Public debt · Public defender · Public document · Public drainage way · Public enemy · Public funds · Public grant · Public health · Public highway · Public holiday · Public house · Public indecency · Public injuries · Public institution · Public intoxication · Public invitee · Public lands · Public land system · Public law · Public liability insurance · Publicly · Public market · Public minister · Public money · Public Nat · Public notice · Public nuisance · Public offerings · Public office · Public officer · Public Officials · Public passage · Public peace · Public peace and quiet · Public place · Public policy · Public pond · Public property · Public prosecutor · Public prosecutor below · Public purpose · Public record · Public records · Public revenues · Public river · Public road · Public sale · Public schools · Public seal · Public security · Public service corporation · Public-service corporations · Public square · Public statute · Public stocks · Public store · Public tax · Public trial · Public trust · Public utilities · Public Utilities Commission · Public utility · Public verdict · Public vessel · Public war · Public waters · Public wharf · Public works · Public worship · Public wrongs · PubUc defender · PubUc figure · PubUc funds · PubUc Interest · PubUc lands · PubUc law · PubUc liabUity Insurance · PubUc offense · PubUc offering · PubUc record · PubUc safety · PubUc sale · PubUc service · PubUc service commission · PubUc trial · PubUc trust · PubUc trustee · PubUc use · PubUc Utility Holding Company Act · PubUc vessel · PubUc Vessels Act · PubUc welfare · PubUsh · PubUsher · PUD · Puerto Rico · Puffing · Puget Sound Painters v · PUght · Pulley v · Punishments should be restrained · Punitive damages · Punitive statute · Purchase agreement · Purchase method of accounting · Purchase money · Purchase money mortgage · Purchase money resulting trust · Purchase money security interest · Purchase order · Purchase price · Purchaser for value · Purchaser of a note or bill · Purdes v · Pure accident · Pure race statute · Pure villenage · Purgatory oath · Purity · Purpose

Purposely · Pursuant · Pursuit · Pursuit of happiness · Pusher · Putative father · Putative marriage · Putative spouse · Put oft · Pyramiding · Pyramid sales scheme · Pyrene-Minimax Corporation v

## Q

Qdentateydiy riyay konstatl · QfektQs SQkweydQr I · Qua I kwey I · Qualified elector · Qualified estate · Qualified fee · Qualified indorsement · Qualified oath · Qualified pension plan · Qualified property · Quality Excelsior Coal Co · Quality of estate · Quallfted fee · Quallfted pensions · Quallfted privilege · Quallfted property · Quallfted voter · Quamdiu Ikwzmdiyuwl · Quantity discount · Quare IkweriyIkwohriyI · Quarter-clay · Quarter cousin · Quarter-eagle · Quarterly · Quarter seal · Quarter section · Quarter session courts ·

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Quarters of coverage · Quarto die post Ikwordow dayiy powstl · Quasi admission · Quasi affinity · Quasi contract · Quasi corporation · Quasi crimes · Quasi easement · Quasi entail · Quasi fee · Quasi IkweysayIkwoziyI · Quasi in rem · Quasi judicial · Quasi judicial act · Quasi municipal corporations · Quasi national domicile · Quasi partner · Quasi personalty · Quasi possession · Quasi-posthumous child · Quasi public corporation · Quasi purchase · Quasi seisin · Quasi tenant at sufferance · Quasi tort · Quasi traditio · Quasi usufruct · QuaUtled Indorsement · Quean IkwiynI · Queen regnant · Queen's Bench Division · Queens Bench Division of the High Court of Justice · Queen's counsel · Queen's evidence · Queen's pdson · Queen's proctor · Quere IkwiriyI · Question of fact · Question of law · Questores parricidii · Questor Ikwestor I · Questor sacri palatii Ikwestor saekray paleyshiyayI · Questus I kwestas I · Quick asset ratio · Quick assets · Quick child · Quick condemnation · Quick with chlld · QUiestor of the sacred palace · Quiet enjoyment · Quiet title action · Quietus I kwayiydas I · Quitclaim deed · Quitting employment · QUlestio vexata · Quletare IkwAyateriy I · Quo jure Ikwow juriy I · Quotation

## R

Rabbinical divorce · Race acts · Race-notice acts · Race-notice recording statutes · Race recording statutes · Rachater Irashatey I · Racket · Racketeer · Racketeering · Radiation Dynamics Inc · Radio Corp · RaHway Labor Act · Railroad aid bonds · Railroad Commission v · Railway Employees v · RaIse an issue · RaIse a presumption · RaIsed check · RaIse revenue · RaIsing a promise · RaIsing a use · RaIsing portions · Rake-off · RaIlroad · RaIston v · Rame · Ran · Ranger · RankIng of creditors · Rank modus · Ransom bill · Rap · Rape of the forest · Rape-reeve · Rapport a succesis on · RAR · Rasure Ireyzhar I · Ratable · Ratable estate or property · Rate charged for discounting loan · Rate of exchange · Rate of interest · Rate of return · Rate tariff · Ratification · Ratification distinguished · Ratifying and confinning · Rating · Rational basis test · Rational doubt · Rational purpose test · RatlIlcation · Ravine · Ravish · Ravisher · Ravishment of ward · Raw land · Raw materials · Raymona Ave · RCivil P · Reacquired stock · Readjustment · Ready · Ready and willing · Real · Real actions · Real assets · Real chattels · Real defense · Real estate · Real-estate agent · Real estate broker · Real estate finanCing · Real Estate Investment Trust · Real estate law · Real estate Osting · Real Estate Settlement Procedures Act · Real estate syndicate · Real estate tax · Real evidence · Real Injury · Realized gain or loss · Real money · Real or feigned · Real party in interest · Real property · Real property law · Real security · Real statutes · Realtor · Realty Co · Realty Corp · Realty v · Real wrong · Reapportionment · Reargument · Rearrest · Reasonable act · Reasonable and probable cause · Reasonable assurance of success · Reasonable benet · Reasonable care · Reasonable cause · Reasonable diligence · Reasonable doubt · Reasonable force · Reasonable grounds · Reasonable Inference rule · Reasonable inspection · Reasonable notice · Reasonable part · Reasonable suspicion · Reasonable time · Reasonable use theory · Reason in law is perfect equity · Reason is not confined to any place · Reason to know · Reassessment · RebelUon · RebelUous assembly · Rebuttal evidence · Recall election · Recant · Recapitalization · Recapture clause · Recapture of depreciation · Recapture of investment tax credit · Receipt of goods · Receiptor · Receivable · Receive · Received from specified source · Receiver · Receiver pendente lite InIsiyvar IXIndentiy laydiy I · Receiver's certificate · Receivership · Receiving stolen goods or property · Recidivist InIsidavastl · Recipient or beneficiary of a pension plan · Reciprocal · Reciprocal Enforcement of Support Act · Reciprocal insurance · Reciprocal laws · Reciprocal negative easement · Reciprocal or interinsurance exchange · Reciprocal promises · Reciprocal trade agreements · Reciprocal transfers · Reciprocal trust · Reciprocal trusts · Reciprocal will · Reciprocal wUls · Recision · Reck · Reckless · Reckless disregard of rights of others · Reckless driving · Reckless homicide · Recklessly · Reckless misconduct · Reclamation · Reclamation Act · Reclamation Bureau · Reclamation Service in the Geological Survey · Recognized · Recognized gain or loss · Recollection · Recommend · Reconciliation statement · Reconsignment · Reconstruct · Recontinuance · Reconvenire IrlykonvanayriyI · Reconventional demand · Record · Recordation · Record commission · Record date · Recorded past recollection · Record notice ·

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Record of nisi prius · Record on appeal · Record owner · Records of a corporation · Record title · Recover · Recoverer · Recross examination · Rectification of boundaries · Rectification of register · Rectify · Recusal · Red banded · Reddldit se I recbcbt siy I · Redeemable bond · Redeemable rights · Redeemable security · Redeemable stock · Redelivery · Redelivery bond · Redemise I rlycbmayz I · Redemption period · Redemption price · Red herring · Redirect examination · Rediscount · Rediscount rate · Red lights ahead doctrine · Redlining · Redmans · Redraft · Reducible felony · Reduction of capital · Reduction to possession · Reduction to practice · Reed Gold Mines Co · Reed v · Re-enact · Re-enactment rule · Re-establish · Re-export · Refer · Referee in bankruptcy · Reference in case of need · Reference statutes · Refinance · Refining Co · Refraining from action · Refreshing recollection · Refund annuity · Refund annuity contract · Refund claim · Refunding · Refunding bond · Refunds · Regard of the forest · Regis Paper Co · Register Co · Registered bond · Registered check · Registered mall · Registered qualified elector · Registered representative · Registered stock · Registered trade-mark · Registered voters · Register in bankruptcy · Register of deeds · Register of land offlce · Register of ships · Register of the Treasury · Register of writs · Register of wUls · Registrar of deeds · Registration of stock · Registration statement · Registry of deeds · Registry of Deeds office in many states · Regress · Regressive tax · Regressive taxation · Regs · Regular and estabHshed place of business · Regular army · Regular course of business · Regular election · Regular entries · Regular meeting · Regular navigation · Regular on its face · Regular process · Regular session · Regular term · Regulation A · Regulation charge · Regulation of an executive department · Regulations · Regulation Z · ReHef · Rehypothecation · Reid v · Reinach v · Reincorporation · Reinman v · Reinstate a case · Reinstatement · Reinsured · Reinsurer · Reissued patent · REIT · Rejection · Relate · Related · Related claim · Related party transactions · Relating or belonging to a parish · Relating to woman's marriage dowry · Relation · Relation back · Relations Board v

Relative confession · Relative convenience doctrine · Relative fact · Relative injuries · Relative powers · Relative rights · Release · Release by way of enlarging an estate · Release by way of entry and feoffment · Release by way of extinguishment · Release by way of passing an estate · Release by way of passing a right · Release of dower · Release of mortgage · Release on own recognizance · Release to uses · Relevant evidence · Relevant market · Reliable · Reliance · Reliance Ins · Reliance on promise · Reliance Standard Life Ins · Relicta verificatione · Relief from prejudicial joinder · Religious corporation · Religious freedom · Religious liberty · Religious use · Rellef Act · Re lriy I · Remainder vested subject to being divested · Remargining · Remedial · Remedial action · Remedial statute · Remedy over · Remissius imperanti melius paretur · Remitting · Remitting bank · Remnant rule · Remonitization · Remote cause · Remote damage · Remote damages · Remote possibility · Removal · Removal bond · Removal to avoid tax · Removing cloud from title · Render judgment · Render verdict · Rendition · Rendition of judgment · Rendition of verdict · Renegotiation · Renegotiation Act · Renegotiation Board · Renew · Renewable term insurance · Renner v · Renshaw v · Rent after all expenses · Rental-rights · Rental v · Rent-charge · Rent control · Rente fonciere Ironf fonsyer I · Rent from state lands · Rent-roll · Rent seck · Rent-service · Rents of assize · Rents resolute · Rent strike · Renunciation of the privileges and prerogatives of an office · Renunciation of will · Reopening a case · Reorganization · Reorganization bond · Reorganization Plan No · Repair · Reparable injury · Repartiamento Ireypartiyamentow I · Repay · Repeaters · Replace · Replacement cost method · Replacement insurance · Replacement reserve · Replead · Replevin bond · Replevy bond · Reply · Report of legislative committee · Reports or reporters · Repossession · Representation of persons · Representatives · RepubUc · RepubUcan government · RepubUcation · RepUcatfon · Repurchase · Reputable · Reputatio est vulgaris opinio ubi non est verltas · Repute · Reputed manor · Reputed owner · Request for admission · Request for instructions · Request for rehearing · Require · Requirement contract · Requirements contract · ReRlstered tonnage · Res adjudicata lriyz sejuwdakeydaI · Resale price maintenance · Rescission by act of parties · Rescission of contract · Rescissory damages · Rescue doctrine · Rescyt I rasiyt I · ResealiDg writ · Reseind · Reservation of claim · Reserve Act · Reserve banks · Reserve Board · Reserve clause · Reserved ·

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Reserved land · Reserved or residual state powers · Reserved power · Reserved surplus · Reserve fund · Reserve ratio · Resettlement · Res gestle · Reside · Residence creates domicile · Residency requirements · Resident agent · Resident alien · Resident allen · Resident freeholder · Residential cluster · Residential density · Residuary account · Residuary bequest · Residuary clause · Residuary devise · Residuary devise and devisee · Residuary devisee · Residuary estate · Residuary gift · Residuary legacy · Residuary legatee · Residuum rule · Res inter alios acta · Res Ipsa loquitur · Res judicata · Res judicata distinguished · Resolution No · Respective · Respect or distinction of persons · Respite of appeal · Respite of homage · Responsibility · Responsible bidder · Responsible cause · Responsible government · Responsibllity of eviction · Responsive pleading · Res quotidianae l riyz kwowtidiyeyniy I · Resseiser Irasiyzar I · Restatement of Contracts · Restatement of Law · Restitution of conjugal rights · Restoration from a condition of outlawry · Restraining or holding back · Restraint of marriage · Restraint of princes and rulers · Restraint of trade · Restraint on alienation · Restrict · Restricted stock · Restricted stock option · Restricted to a particDecided by a narrow margin · Restrictive covenant · Restrictive covenants · Resubdivision · Resulting powers · Resulting trust · Resulting use · Retail installment contract · Retail installment sale · Retail sale · Retained earnings · Retainer · Retainer pay · Retaining fee · Retaining Hen · Retaining lien · Retaldng · Retaliation · Retaliatory eviction · Retallatory law · Retaller · Retall installment account · Retire · Retirement annuity · Retirement income insurance · Retraction · Retreat to tbe wall · Retrial · Retroactive · Retroactive inference · Retroactive law · Retro I retrow I · Retrospective law · Return day · Return of premium · Return of process · ReUnquisb · ReUnquishment · Rev · Revaluation · Revaluation surplus · Reve l riyvI · Revenue bill · Revenue bills · Revenue bond · Revenue bonds · Revenue Code · Revenue law or measure · Revenue Procedure · Revenue Ruling · Revenue stamps · Revenue tariff · Revenue v · Reverse · Reverse discrimination · Reverse stock split · Reversionary interest · Reversionary lease · Revise · Revision · Revision of statutes · Revisor of statutes · Revival · Revival of action · Revival of judgment · Revival of will · Revival statutes · Revocable credit · Revocable letter · Revocable transfer · Revocable trust · Revocation · Revocation hearing · Revocation of wiD · Revolution · Revolving charge account · Revolving credit · Revolving fund · Revolving letter of credit · Revolving loan · Rex I reks I · Reynolds Mortg · Reynolds v · RhandJr · RI · RIal l riyaV · Rice Industry v · Rice v · Richard I · Richard I to Edward III · Richards-Conover Hardware Co · Richardson v · Richmond v · Rich v · Ridinger v · Rien culp · Rien dit · Rien luy dolt · Riens en arriere · Riens passa per Ie fait · Riens per descent · RIght and wrong test · Right cannot die · Right heir · RIght of action · Right of first refusal · Right of fishery · Right of local self-government · Right of survivorship · Right ot privacy · Rights · Rights Acts

Rights and remedies · Rights are also either in personam or in rem · Rights are also either legal or equitable · Rights in general · Rights of action · Rights of unborn child · Rights Organization v · Right to attorney · Right to come into court · Right to retainer · Right to travel · Right to work laws · Riley v · Ring · Ringer v · Ringing the changes · Ringing up · Ringling Bros · Ringwald v · Riot · Rioter · Riotous assembly · Riparian owner · Riparian proprietor · Riparian rights · Riparian water · Ripeness doctrine · Ripuarian laws · Rising up and lying down · Risk capital · Risk incident to employment · Risk premium · River banks · River Syndicate v · Road districts · Roads · Roanoke Hospital Ass'n v · Rob · Robinson-Patman Act · Robinson v · Robrock V · Rock Mountain Corp · Rody v · Roesbery v · Rogers v · Rolling over · Roll-over paper · Roman and civil law · Roman and the deposit of the English law · Roman cathoDe Church · Roman Catholic Church · Roman citizens · Roman citizen to another · Roman emperors · Roman Empire · Roman empire were so called · Roman forms of divorcing a wife · Roman law · Roman law of evidence · Roman law relative to the forfeiture of contracts · Roman marriage · Roman or Civil law · Roman republic · Romans · Romans were commonly distinguished · Rome for a provision · Rome proposed by the tribune L · Ronnow v · Ronzio v · Roomer · ROR · Rosenblatt v · Rosenblum v · Roth v · Rothwell v · Roubay v · Round lot · Royal prerogative · Royal purveyors · Royal scribe · Royalty acres · Royalty bonus · Roy est l'orlginal de touts franchises · Rptr · Rubber check · Rudeness · Rul · Rule · Rule absolute · Rule against perpetuities · Rule imposing standard of

conduct or action · Rule in Shelley's Case · Rulemaldng power · Rule nisi · Rule of apportionment · Rule of Civil Proc · Rule of four · Rule of law · Rule of lenity · Rule of necessity · Rule of presumption · Rule of reason · Rule of road · Rule pleading · Rules and Orders · Rules and regulations · Rules of Appellate Procedure · Rules of Civil Procedure · Rules of Civil Procedure to govern their trial courts · Rules of court · Rules of Criminal Procedure · Rules of Decision Act · Rules of Evidence · Rules of navigation · Rules or Codes of Civil Procedure · Rule to show cause · Ruling · Runaway shop · Runner · Running days · Running of the statute of Hmitations · Running pollcy · Running water · Russell v · Russia · Russ v · RustHng · Rustler · Ry · Ryan v · Rylands v · Rymanowski v

## S

Sabbath-brealdng · Sabin v · Sac Isekl · Sacramentum IsZmmentam I · Sacrilege I semlaj I · SaD · Sadism Iseydizamlsred I · SaDors · SaDors' Rellef Act · SaDors' wlll · Safety Appliance Act · Said of stock without a par value · Said to be the same as the conditionales · Saisie-arret · Saisie-execution · Saisie-foraine · Saisie-gagerie · Saisie-immobiliere · Salability · Salable · Salable value · Salazar v · Sale · Sale against the box · Sale and leaseback · Sale and return · Sale by sample · Sale in gross · Sale-note · Sale of goods · Sale of land · Sale of property for nonpayment of taxes · Sale on · Sale on approval · Sale or exchange · Sale or return · Sale per aversionem · Sales · Sales agreement · Sales contract · Sales ftDance company · Sales invoice · Salesman · Sales taX · Sale with all faults · Sale with right of redemption · Saloon · Salt Lake County v · Saltonstall v · Salt water · Salvage charges · Salvage loss · Salvage service · Salvage value · Salvation Army v · Same evidence test · Same Invention · Same offense · Same with word northerly · Sample of one's breath used in testing for alcoholic content · Samuel E · San Antonio v · Sanches v · Sandwicb lease · SanguiS IsZogwaSI · SanItary · SanItary code · SanItation · SanIty hearing · SanIty trial · SanIpractlc IserutpnillWkl · Sap · Sate · Sate deposit box · Sate deposit company · Sate Omit of speed · Sate place to work · Satisfaction of judgment · Satisfaction of llen · Satisfaction of mortgage · Satisfaction piece · Satisfactlon · Satisfactory · Satisfactory evidence · Satisfy · Sauvagine IsovajiynI · Save harmless clause · Saving · Savings account · Savings account trust · Savings and loan association · Savings and loan bank · Savings bank trust · Savings Bank v · Savings bond · Savings notes · Savings Trust Co · Saving to suitors clause · Savour Iseyvar I · Savoy in London and some land near Westminster · Sawyer Stores v · Sax · Saxon and old German law · Saxon law · Saxon times · Scab · ScaIam I skeylaml · Scale order · Scale tolerance · Scaling laws · Scalper · Scheduled injuries · Scheduled property · Scheid v · Schenck ex reI · Schenck v · Schildhaus v · Schlueter v · Schock v · Schoen v · School board or committee · School bonds · School directors · School Dist · School district · School lands · Schools of medicine · Schreiner v · Schroeder v · Schultz v · Schur v · Schwartz v · Sci · Scope of a patent · Scope of authority · Scope of employment · Scorn · Scot and lot · Scotch and French jurisprudence · Scotch law · Scotch town · Scott-Burr Stores Corporation v · Scranton v · Scrap value · Scratching the ticket · Screw Products Co · Scrip dividend · Scudder v · Sea bed · Seabloom v · Seabolt V · Seaborn v · Sea-brief · Sea laws · Sealed and delivered · Sealed bid · Sealed instrument · Sealed verdict · Sea letter · Sealing of records · Seaman's will · Seaman v · Search and seizure · Search Incident to arrest · Search without warrant · Sea-reeve · Sea-rovers · Seashore · Seasonable · Seasonal employment · Seat of government · Sec · Secession · SEC of nearly all publicly-held corporations · Second Amendment · Secondary boycott · Secondary conveyances · Secondary creditors · Secondary distribution · Secondary easement · Secondary evidence · Secondary liability · Secondary meaning · Secondary offering · Secondary parties · Secondary picketing · Secondary strike · Secondary use · Second cousins · Second degree crime · Second degree murder · Second delivery · Second distress · Second Hen · Second mortgage · Second offense · Second surcharge · Secrecy · Secretary General · Secretary of Embassy · Secretary of Legation · Secretary of State · Secret ballot · Secret Hen · Secret partner · Secret partnership · Secret Service · Secret trusts · Secular business · Secular clergy · Secular service · Secure against arrest · Secured · Secured debt · Secured loan · Secured note · Secured party · Secured transaction · Securely

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attached · Securities · Securities Acts · Securities and Exchange Commission · Securities and Exchange Commission v · Securities broker · Securities Exchange Act · Securities industry's method of extending credit to customers · Securities Investor Protection Act · Securities issue · Securities offering · Security Commission of Ariz · Security councU · Security deposit · Security for costs · Security for good behavior · Security fund · Security Ins · Security interest · Security Transfers Act · Sedimentation · Seditions conspiracy · Seditious libel · Seditious speech · Sed qwere I sed kwiriy I · Sed vide I sed vaydiy I · See Abearance · See Abjuration · See Abortion · See Absque hoc · See Abuse · See Abuttals · See Access · See Accession · See Accessory · See Accommodation · See Accommodation lands · See Accord and satisfaction · See Accountant · See Accrued depreciation · See Accumulated earnings tax · See Actio confessoria · See Actionable · See Actionable negligence · See Actionable per quod · See Active negligence · See Act of Bankruptcy · See Act of God · See A datu · See Address · See Administration of estates · See Administrative adAdministrative deviation · See Administrative agency · See Admission · See Admittendo clerico · See Ad quod damnum · See Adscriptus · See Advancement · See Adverse- possession · See Advisory jury · See Advoutry · See Affidavit of defense · See Affirmative · See Affirmative defense · See Agency · See Agent · See Aggrieved party · See Alias · See All-fours · See Allocution · See Allodarii · See Alnager · See also Abatement of action · See also Abjure · See also Abode · See also Accommodation party · See also Accrual basis · See also Accruing interest · See also Actionable per quod · See also Act of God · See also Advice of counsel · See also Alter ego

See also Ancient street · See also Ancient water course · See also Appearance · See also Appointment · See also Assault and battery · See also Assessment · See also Assumption · See also Attachment · See also Attachment execution · See also Attempt · See also Attractive nuisance doctrine · See also Average daily balance · See also Bank · See also Bare trustee · See also Bm of IadJng acts · See also Bonus · See also Breach of the peace · See also Breaking · See also Business entry rule · See also Cannabis · See also Capacity · See also Caption · See also Care · See also cause · See also Cause of action · See also Cepi · See also Certificate of assize · See also Charitable contributions · See also Charitable organizations · See also Charter · See also Child abuse · See also Chlld abuse · See also Citation · See also Citation of authorities · See also Civil death · See also Closed shop · See also Codification · See also Cognovit judgment · See also Collecting bank · See also Color of office · See also Community property · See also Computation of time · See also Considered · See also Construction · See also Constructive notice · See also Consular invoice · See also Consumer loan · See also Contract under seal · See also Copyright · See also Coram nobis · See also Corpus · See also Corroborating evidence · See also Cy-pres · See also Damage · See also Date of issue · See also Debenture · See also Defamation · See also Deferred income · See also Deliberation · See also Deprivation of property · See also Descent · See also Desertion · See also Disagreement · See also Distributable net income · See also Docket · See also Double hearsay · See also Drawing account · See also Ecclesiastical law · See also Entrapment · See also Equal protection of the law · See also Equitable estoppel · See also Equity · See also Error · See also Evasion · See also Expert witness · See also Extraordinary repairs · See also Extraordinary risk · See also Faculties · See also Fair market value · See also Fairness or equal time doctrine · See also Fair triai · See also Fair use doctrine · See also Fair value · See also False · See also False swearing · See also Farmer · See also Federal · See also Federal Register · See also Federal Reporter · See also Federal Supplement · See also Felonious · See also Feudal system · See also Fiduciary or confidential relation · See also Final decision rule · See also Financial responsibility acts · See also Fitness for partlcular purpose · See also Fixture · See also Fortuitous event · See also Freedom · See also Full faith and credit clause · See also Fund · See also Gag order · See also Grace period · See also Growing crop · See also Headstream · See also Hold · See also Husbandman · See also Hybrid security · See also IdentHication · See also Immunity · See also Impediments · See also Inchoate dower · See also Income beneficiary · See also Income statement · See also Inference · See also Information · See also Injunction · See also inMotor carrier Act · See also Inquisition · See also Insanity · See also Institution · See also Instrument · See also Intermediate order · See also Interpleader · See also Interpolate · See also Interrogation · See also Invasion

of privacy · See also Investment banker · See also Irretrievable breakdown of marriage · See also Judicial branch · See also Judicial notice · See also Judiciary Acts · See also Jurat · See also Jurisdictional statement · See also Jury panel · See also Jury-Ust · See also Labor · See also Labor union · See also Legal · See also Legal entity · See also Legal excuse · See also Legal fiction · See also Legal holiday · See also Legally sufficient tender · See also Legislature · See also Leverage · See also Libel · See also Local option · See also Lookout · See also Luxury tax · See also Magistrate · See also Mainprise · See also Maintenance · See also Maintenance and cure · See also Malfeasance · See also Maritime · See also Market · See also Marketable title · See also Market value · See also Material fact · See also Merchantable title · See also Merger · See also Minimal contacts · See also Miscarriage of justice · See also Model Act · See also Municipality · See also Municipal ordinance · See also Natural resources · See also Negligence · See also Negotiate · See also Negotiation · See also Nighttime · See also Nuncupative wm · See also Obscenity · See also Ombudsman · See also Omsbudsman · See also Ordinary · See also Ownership · See also Parens Patrie · See also Parties · See also Patent · See also Pauper's oath · See also Pecuniary injury · See also Penal action · See also Penal code · See also Pendente lite · See also Penumbra doctrine · See also Per diem · See also Permanent disability · See also Perpetuity · See also Person · See also Personal effects · See also Place · See also Pledge · See also Police power · See also Polling the jury · See also Polygamy · See also Port · See also Preemptive right · See also Presumptive evidence · See also Price-fixing · See also Probable cause · See also Procedural law · See also Proctor · See also Proper lookout · See also Prosecutor · See also Proviso · See also Proximate cause · See also Public convenience and necessity · See also Qualified · See also Reasonable doubt · See also Reasonable inference rule · See also Recall · See also Receiving stolen goods or property · See also Reciprocal · See also Reciprocal contract · See also Reciprocity · See also Reconsignment · See also Recording acts · See also Redeemable stock · See also Red herring · See also Referelldum · See also Reform · See also Release · See also Relevant evidence · See also Renunciation · See also Replevy · See also Restitution · See also Revenue law or measure · See also Reverse stock split · See also Riot · See also Savings and Loan Association · See also Secondary eviSecond-hand evidence · See also Security · See also Seduce · See also Self incrimination · See also Sentence · See also Sham · See also Sheriff's sale · See also Shifting the burden of proof · See also Simulate · See also Small Claims Court · See also Solicitation · See also Spealdng motion · See also Stakeholder · See also Stare decisis · See also Step-up in basis · See also Strict liabUity · See also Strildng a jury · See also Sum certain · See also Supreme Court · See also Surrogate parent · See also Surtax · See also Suspension · See also Taking · See also Tax certificate · See also Time · See also Trade-name · See also Trauma · See also Trial · See also Trial calendar · See also Trust · See also Underwrite · See also Undue influence · See also Unfair competition · See also Unfair methods of competition · See also Unlawful assembly · See also Us urpa tion · See also Vacant · See also Vagrant · See also Variance · See also Verification · See also Vested · See also Voice exemplars · See also Voting stock · See also Warrant · See also Warranty · See also Water course · See Alternative relief · See Ambassador · See Amicable compounders · See Ancient · See Annual · See Annually · See Annual percentage rate · See Annual report · See Answer · See Ante natus · See Aphasia · See Apparent danger · See Appeal · See Appearance · See Appraisal remedy · See Appraiser · See Approver · See Arbitrary · See Arches Court · See Arrest · See Arrest record · See Arson

See Art · See Articles of partnership · See Assessment roll · See Assignability · See Assisa · See Assise · See Assumption of risk · See Attainder · See Attest · See Attestation · See Attorney's lien · See Attribution · See Auction · See Audit · See Authorities · See Authorized issue · See Autre · See Autre action pendant · See Average · See Back · See Backwardation · See Bail · See Bailment · See Ballivo amovendo · See Balloon payment · See Ballot · See Bank · See Banni · See Bargain · See Bargaining agent · See Barons of the exchequer · See Base · See Battery · See Beau pleader · See Bench blotter · See Beneficium · See Benefit of clergy · See Benefit of inventory · See Benefit societies · See Benevolent associations · See Berat · See Best evidence · See Bid · See Bill · See Binding over · See Blindness · See Bll · See Blll · See Blood grouping test ·

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See Blood relations · See Bloodwit · See Board · See Bona fide · See Bond · See Bond discount · See Book · See Borough English · See Bothagium · See Broker · See BuDding and loan association · See BUI of lading · See Bureau of Land Management · See BurFelonious homicide · See Burglariter · See Business · See Buying in · See C · See Caesarean operation · See Calendar · See Calvo doctrine · See canvass · See Capacity · See Capltanze · See Carnal knowledge · See Case agreed on under Case · See Castigatory · See Catalla · See Cause list · See Chain of custody · See Challenge · See Chancellor · See ChanceUor · See Charitable · See Charitable use · See Charter-party · See Chattel mortgage · See Check · See Child · See Citizen's arrest · See Civil action · See Civil liberties · See Civil service · See Civn death · See Classification · See Class or representative action · See Clean hands doctrine · See Clearinghouse · See Clerical error · See Clerk of the market · See Client security fund · See Closing argument · See Code Civil · See Code of Professional Responsi- · See Cognizee · See Cognizor · See Collateral attack · See Color of law · See Commence · See Commerce · See Commercial paper · See Commission of array · See Commodities · See Common · See Community property · See Comparative negliConcurrent negligence · See Compilation · See Concession · See Concurrent estates · See Condedit · See Condemnation · See Condition · See Confession · See Consideration · See Consimili casu · See Consolidated stateConsolidated bonds · See Consolidation of actions · See Consortium · See Constitutional court · See Construction · See Constructive possession · See Contempt · See Contract · See Contract of insurance · See Convertible securities · See Conviction · See Cooperative · See Coroner · See Corporadon · See Corporal punishCruelty · See Corporation · See Correspondence audit · See Correspondent · See Coshering · See Cost · See Costs · See Counter-security · See Countersign · See County · See Court-baron · See Court-Leet · See Court of Appeals · See Court of asAssistance of counsel · See Court of Claims · See Court of King's Bench · See Court of the Steward and Marsbal · See Covenant · See Credible · See Creditor · See Credit rating · See Criminal · See Criminal sanctions · See Cumulative · See Curative · See Current income · See Cursitors · See Custom and usage · See Cy pres · See Czar · See Damages · See Dative · See Day · See Daytime · See Dead man's part · See Death · See Debt pooling · See Declaration · See Declaratory · See Declaratory judgment · See DeDe Idiy I · See Dedication · See Deed · See Deed of gift · See DefamaChild abuse · See Defeasible · See Defense · See Definite sentence · See Degradation · See Demand note · See De melioribus damnis · See Demens · See Demesne · See De minimis non curat lex · See Demonstrative evidence · See De novo · See De odio et atia · See Depletion · See Deposit Insurance Corporation · See Deputy · See Derivative action · See Descent · See De son tort · See Devise · See DiBedel Ibjydal J · See Diligence · See Diminution · See Direct cause · See Disafforest · See Discovery · See Discretionary acts · See Distribution · See Diversity of citizenship · See Dividend · See Docket · See Document · See Dolus · See Domain · See Domesday-book · See Domicile · See Donatio mortis causa · See Donation lands · See Double · See Double taxation · See Dower · See Dram Shop Acts · See Droit d'aubaine · See Due process of law · See Dumping Act · See Dying without issue · See Dynamite instruction · See Earnest money · See Egress · See Ejidos · See Elder brethren · See Election · See Embracery · See Emperor · See EnabUq statute · See En bane · See Encumbrance · See Engross · See Enrollment · See Entering judgments · See Entry · See Equalization · See Equitable estoppel · See Equity · See ErIe v · See Error · See Error in fact · See Error in law · See Escalator clause · See Esnecy · See Esplees · See Estate · See Estate by the entirety · See Estate for years · See Estate pur autre vie · See Estray · See Estrepement · See Evidence · See examples below · See Exchange rate · See Exclusive possession · See Exclusive use · See Execution · See Executive pardon · See Exigenter · See Expert witness · See Express assumpsit · See Ex relatione · See Extradition · See Extraordinary · See Extraordinary remedies · See Face of Judgment · See Face of record · See Facies · See Fact · See Fact question · See Failure of proof · See Fair and impartial jury · See Fair Labor Standards Act · See Fair market value · See Fair preponderance of evidence · See Fair rent · See Fair sale · See Fakir · See Falsarius · See False claim · See Falsify · See Family automobDe doctrine · See Family automobile doctrine · See Family Bible · See Family settlement · See Farming products · See Feal · See FealSee Feudal system · See Fealty · See Federal acts · See Federal

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Judicial Code · See Federal Reserve Board of Governors

See Federal Reserve System · See Federal Rules of Civil Procedure · See Fee simple · See Feigned action · See Feticide · See Fetters · See Feudum indiImpeach · See Fiduciary · See Fire ordeal under the title Ordeal · See Fixed sentence · See Flat · See Folc-land · See For cause · See For colCollection of illegal fees · See Foreclosure · See Foreign agent · See Forensic medicine · See Forest courts · See Formedon · See Frank · See Frank-pledge · See Fraud · See Fraudulent · See Fraudulent conveyance · See Freoling · See Fresh pursuit · See Funded · See Gambling device · See Gambling place · See Gifts to MInors Act · See Gonorrhea · See Good Samaritan doctrine · See Government · See Governmental immunity · See Governmental secrets · See Gressume · See Gross income tax · See Ground rent · See Guarantee clause · See Guildhall · See Habeas corpus · See HabitablUty · See Half · See Haligemot · See Handhabend · See Harmony · See Hazard · See Hearing de novo · See Heir · See Heirs · See HerediJack · See Hereditaments · See Heres · See Hijacking · See Holder in due course · See Homestead · See Homicide · See Homo liber · See Honor · See Hundred Court · See Husband-wife tort actions · See Ibidem · See Imparlance · See impartial Jury · See Importation · See Import-export clause · See Inclosure · See Income · See Income statement · See Income tax · See Incorporation by reference · See Incorporator · See Indecent · See Indian tribe · See Indictment · See Indorsee · See Indorsement · See Indorser · See infra · See Infra presidia · See Infringement · See In full life · See Injury · See Inland · See In loco parentis · See Inns of Chancery · See Inns of court · See In pari deUcto · See Insanity · See InstiGale · See institutes · See Instruction · See Insurable interest · See Insurance · See Intentate commerce · See Interest · See Interlocking directorate · See International Court of Justice · See International law · See Interpretation · See Interstate compact · See Inventio · See Investment · See Investment tax credit · See Involuntary conveyance · See Jettison · See Joinder · See Joint enterprise · See Joint-stock association · See Joint tort-feasors · See Joint venture · See Judex · See Judge-made law · See Judgment · See Judgment In perSee Judgment In rem · See Judgment in personam · See Judicial · See Jury · See Jury instructions · See Jus ad rem · See Jus commune · See Justice · See Justiciar · See Kidnapping · See King's counsel · See King's evidence · See Knight · See Knight's fee · See Laborer · See Lage · See Land · See Land boundaries · See Land gabel · See Land grant · See Landlord · See Landlord's warrant · See Land revenues · See Land trust · See Last illness · See law · See Law of the land · See Lease · See Legacy · See Legal assets · See Legal cruelty · See Legal holiday · See Legal malice · See Legal proceedings · See Legal voter · See Legatee · See Legislative immunity · See Legitime · See Let · See Letter · See Letter of credit · See Letters of administration · See Lettres de cachet · See Lex aquilia · See Lex atlnia · See Lex atUla · See Lex Julia · See Libelous per se · See Line · See Lis pendens · See Loansharking · See Local law · See Loss · See Lucrative · See Lying In wait · See Maintenance and cure · See Malpractice · See Manca · See Mancipi res · See Mandamus · See Manung · See Marihuana · See Market · See Marketable title · See Marriage · See Martial law · See Masochism · See Master · See Material fact · See Maternal line · See Meander lines · See Mechanic's Hen · See Men of Straw · See Merrill v · See Minimal contacts · See Mining · See Ministerial · See Miscegenation · See Misfeasance · See Misprision · See Misprision of felony · See Mitigation of damages · See Money · See Month · See Mortgage · See Multa · See National bank · See Native · See Natural law · See Navigation · See Nebraska Press Ass'n · See Necessaries · See Negligence · See New assignment · See NoDe prosequi · See Nomina transcriptitia · See Non obstante veredicto · See Nonsuit · See Non sum informatus · See Notice · See Notice of trial · See Nuisance · See Nul · See o · See Oath · See Obligation · See Obscene · See ObUgation · See Occupation · See Offer of proof · See Office · See Officer · See Open letter of credit · See Opinion evidence or testimony · See Ordeal · See Ordinary · See Owner · See Oyer and terminer · See Package · See Pallio cooperIre · See Par · See Parens patrie · See Parental liability · See Parental liabllty · See Parity · See Parliament · See Parole board · See Partner · See Partnership · See Party · See Patent · See Paternal Une · See Payment guaranteed · See Perjury · See Perquisites · See Per se doctrine · See Petit cape · See PetitIon · See Piercing corporate veil · See PIracy · See Plain view doctrine · See Plea · See Plea bargaining · See Pleadings · See Pnemunire · See Poaching · See Policy of insurance · See Polling the jury ·

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See Possession · See Possible · See Postliminium · See Post-nuptial agreement · See PoUcy of Insurance · See Pour-over · See Power · See Power of alienation · See Power of appointment · See Preference · See Preferential debts · See Pregnancy · See Preliminary · See Presumption · See Pre-trial conference · See Pre-trial order · See Principal · See Privilege · See Privity · See Prize · See Probate · See Process · See Proffer · See Prohibition · See Promise · See Proof · See Property · See Pro rata · See Protest · See Proximate cause · See Public defender · See Public utility · See Punishment · See Quare Impedlt · See Queen's bench · See Que est eadem · See Quia timet · See Quod recuperet

See Quo warranto · See Reciprocal wllls · See Reclamation Act · See Record · See Rectus in curia · See Recusation · See Redemption · See Regulations · See Regulation Z · See ReHcta verificatione · See Relevant evidence · See Remainder · See RemecUal · See Renunciation · See Repleader · See Replevin · See Reports or reporters · See Represent · See Request · See Res · See Reserve · See RESPA · See Retraxit · See Return · See Revenue · See Revenue Procedure · See Revenue Ruling · See Reversion · See Revival · See Revolving credit · See Rhodian laws · See Right · See Right of entry · See Right of redemption · See Riparian · See Roll · See Sale · See Salvage · See Satisfaction piece · See School · See School board · See Sealed · See Seated land · See Secondary meaning · See Sedition · See Seisin · See Sentence · See Separation of powers · See Service · See Service charge · See SesSpecialty · See Sever · See Severalty · See Sharecropper · See Ship · See Sill of RIghts · See Social Security Administration · See Solutio indebiti · See Special law · See Spendthrift trust · See Staple · See State's evidence · See Statute · See Stet processus · See Stock · See Stockholder'S derivative action · See Strict liability · See Subrogation · See Summary judgment · See Summing up · See Summons · See Supremacy clause · See Supreme Court · See Surtax · See Survival actions · See Syndic · See Tacit admissions · See Tacking · See Take · See Tales · See Tax · See Tenant · See Tender offer · See Test · See Testament · See Testamentary · See Teste of a writ · See Testimony · See that title · See Thin corporation · See those titles · See Threats · See TIde · See Tippees · See Tithing · See Title by adverse possesTitle deeds · See Toolson v · See Tort · See TraD-baston · See Trade-mark · See Trade-name · See Trading partnership · See Traveler'S check · See Treasury stock · See Treaty clause · See Treble damages · See Trespass · See Trust · See Trustee · See Trust indenture · See Tutela · See Twa night gest · See Ubel · See Uberty · See Ucense fee or tax · See Uen · See Ugan · See Umitation · See Umited partnership · See Unborn cblld · See Undercurrent · See Undlvlded profits · See Unfair labor practice · See Uniform · See Uniform Commercial Code · See Unlawful picketing · See Unliquidated · See Unlooked for mishap · See Use · See Ustlng · See Us ury · See Uterary · See Vadium · See Valec · See Variance · See Vasectomy · See Verdict · See Vessel · See Vested · See Veterans Administration · See Vexatious delay · See Void contract · See Wager · See Warehouse system · See War power · See Warrant · See Warranty · See Water · See Water course · See Water-mark · See WIllful · See Withholding · See wm · See Work product rule · See Writ · See Writing obligatory · See Writ of assistance · See Writ of error · See Wrongful death statutes · See WUl contest · See Year · See Yom Kippur · Segal v · Segregation · Seisin in deed · Seisin in fact · Seisin in law · Seized · Seize Isfyzl · Seizure of property under a writ of attachSee Attachment · SeJf a uthentication · Select · Selective Service System · Self-dealing · Self-defense · Self-employment tax · Self-executing constitutional provision · Self-executing judgments · Self-help · Self-incrimination · Self-Insurance · Self-proved wills · Self serving declaration · Selling stocks short · Seminole v · Senage Isiynaj I · Send · Senior counsel · Senior Hen · Senior interest · Seniority · Senior judge · Senior mortgage · Sentence in abstentia · Sentences · Sentencing · Sentencing councll · SenUity I SQnilOldiy I · Separability clause · Separable · Separate · Separate action · Separate but equal doctrine · Separate covenant · Separate demise In ejectment · Separate estate · Separate examination · Separate maintenance · Separate offenses · Separate property · Separate return · Separation agreement · Separation from bed and board · Separation of jury · Separation of patrimony · Separation of powers · Separation of spouses · Separation of witnesses · Separation order · Septemb · Sequestered account · Sequestration of jury · Sergeant-at-arms · Serial bond · Serial bonds · Serial note · Serial right · Seriatim I siriyeydaml · Series bonds · Serious and wllful misconduct

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· Serious crime · Serious Illness · SerJeant-at-arms · Serological test · Service and Labor Department · Service by publication · Service charge · Service Co · Service contract · Service establishment · Service is the Postmaster General · Service life · Service mark · Service occupation tax · Service of process · Servicing · Servient tenement · Servitude · Servitudes are also classed as positive and negative · Servltus pnedli rustle · Session laws · Setback · Set-off distinguished · Settle · Settled estate · Settled or established by agreement · Settlement · Settlement option · Settlement Procedures Act · Settlement statement · Settle up · Setzer v · Seventeenth Amendment · Seventh Amendment · Severability clause · Severability doctrine · Severable contract · Severable statute · Several actions · Several counts · Several defendants · Several demises · Several eyes see more than one · Several fishery · Several inheritance · Several liability · Severally · Several tail · Several tenancy · Severance damage · Severance damages · Severance of actions · Severance pay · Severance tax · Severe · Sewing Mach · Sex · Sex Discrimination in Employment Based on Pregnancy Act · Sgarlat v · Shack · Shakedown · Sham · Sham answer · Sham defense · Shameful or disgraceful · Sham pleading · Shannon v · Shapiro v · Share and share alike · Share certificate

Sharecropper · Sharecropping · Share of corporate stock · Share ot corporate stock · Shares issued for no lawful consideration · Share split · Share-warrant to bearer · Shaw v · Shelter · Sheriffs deed · Sheriffs sale · Sherman Antitrust Act · Sherman Antitrust Ad · Shield law · Shield laws · Shields v · Shifting clause · Shifting income · Shifting risk · Shifting severalty · Shifting stock of merchandise · Shifting the burden of proof · Shifting trust · Shifting use · Shinn v · Ship broker · Ship-master · Shipment · Shipment contract · Ship Mortgage Act · Shipper · Shipping articles · Shipping document · Shipping order · Shipping papers · Ship's husband · Ship's papers · Shire-clerk · Shire-mote · Shivers v · Shoe Co · Shoot · Shop-book rule · Shop-books · Shoplifting · Shop right rule · Shop steward · Shore lands · Short · Short covering · Short form merger · Short interest · Shortly after · Short position · Short sale · Short swing profits · Short-term · Short-term debt · Short term gain · Short-term loan · Short term loss · Short term paper · Short term security · Short term trust · Should · Should know · Show cause order · Shower · Show-up · Shreveport v · Shut down · Shute v · Shut-in royalty · Slains · Side lines · Siegel v · Sight draft · Signal · Signature card · Signed · Signify · Signifying a breach of the peace in a town · Silence · Silent partner · Silia to all obligations for any certain definite thing · Silver bond · Silvey v · Similarity · Similar to another · Similar to guardian by estoppel · Similar to the common law easement of drip · Simllar sales · Simmons v · Simple assault · Simple battery · Simple bond · Simple contract debt · Simple interest · Simple kidnapping · Simple larceny · Simple license · Simple negligence · Simple or conditional obligation · Simple robbery · Simple trust · Simple trusts are those that are not complex trusts · Sims v · SimUar · SimUar happenings · SimUar sales · Simulated contract · Simulated fact · Simulated judgment · Simulated sale · Simultaneous · Simultaneous Death Act · Simultaneous death clause · Since · Since the last continuance · Sinecure I saynakyilrl sin I · Sine decreto I sayniy dakriydow I · Sine Isayniy I · Single bond · Single creditor · Single demise · Single juror charge · Single original · Single or penal obligation · Single premium insurance · Single publication rule · Singular successor · Singular title · Sinking fund debenture · Sinking fund method · Sinking fund method of depreciation · Sinking fund reserve · Sinking fund tax · SIPC · Sister corporation · Sister-In-law · Sit-down strike · Sitting · Sittings after term · Sittings in camera · Situate · Situation · Situation of danger · Sixteenth Amendment · Sixth Amendment · Sixty-day notice · Skelton v · Skilled witnesses · Skinpop · SkiptraciDg · Slander · Slander of title · Slate · Slay · Sleeping or silent partner · Sleep-walking · Slek · Slek leave · Slekness · Slemend · Slight negligence · Slmpla I simplM · Slot machine · Slowdown · Slum · Slush fund · Slxty-day notice · Small Business Administration · Small business corporation · Small Business Investment Act · Small Business Investment Company · Small Claims Court · Small estate · Small estate probate · Small loan acts · Small vacation house · Smith Act · Smith v · Smitti v · Smut · Smythe V · Sneed v · Sober · Soc · So called as being an inferior pledge to the chief · Social guest · Social insurance · Social Security Act · Social Security Administration · Social Security check or an unemployment check · Soft goods · So help me God · Solar day · Sold · Soldiers' and Sallors' Civil Relief Act · Soldier's will · Sole actor doctrine · Sole and unconditional owner

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· Sole cause · Solemn oath · Solemn occasion · Solemn war · Sole proprietorship · Sole tenant · Solicit · Solicitation of bribe · Solicitor General · Solidarity · Solidary obligation · Solitary confinement · Solvendo esse I solvendow esiy I · So many of the by-standers · Something given or demanded in payment · Something lent to the borrower at his request · Something that happens · Sometimes called a flat or flat house · Sometimes expressed by the letters D · Sometimes it means merely such right of folding · Sometimes referred to as larceny from the person · Sometimes spelled faqueer or fakeer · Son assault demesne · Son bank · Son or daughter of one's uncle or aunt · Sons S · Sound · Sound and disposing mind and memory · Sound health · Sounding in damages · Sound judicial discretion · Sound mind · Sound value · Source · South America · Southern California Telephone CO · Southern District of New York · Southland Royalty Co · South Pasadena v · Southwestern Const · Sovereign Immunity · Sovereign people · Sovereign power or sovereign prerogative · Sovereign right · Sovereign states · Sovereignty or dominion · Span · Spanish government of lands in America · Spanish grants in Louisiana · Spanish law · Spanish law which prevailed in Louisiana and CalifOrnia · Sparkman v · Speaking motion · Special act · Special administration · Special agency · Special agent · Special assessment · Special a uthority · Special bail · Special bailiff · Special calendar · Special charge · Special contract · Special count · Special damages · Special demurrer · Special deputy · Special digests · Special diligence · Special district · Special election · Special errors · Special exception · Special execution · Special executor · Special facts rule · Special grand jury · Special guaranty · Special Hen · Special indorsement · Special interest groups · Special interrogatories · Specialist · Special jurisdiction · Special jury · Special law · Special legacy · Special linutation · Special malice · Special master · Special matter · Special meeting · Special occupant · Special owner · Special partner · Special partnership · Special permit

Special plea · Special plea in bar · Special proceeding · Special property · Special registration · Special reprisals · Special session · Special statute · Special term · Special traverse · Special trust · Specialty debt · Special use permit · Special use valuation · Special verdict · Special warranty · Special warranty deed · Specifically · Specific bequest · Specific intent · Specific legacy · Specific performance · Specific tax · Specify · Spectrograph · Speculative damages · Speech · Speech or debate clause · Speed · Speedy remedy · Speedy Trial Act · Spellacy v · Spend · Spending power · Spendthrift trust · Sperry Flour Co · Sphere of influence · Spilt-income · Spin-off · Spiritual corporations · Spiritual courts · Spite fence · Split dollar insurance · Split gift · Split income · Split-interest trust · Split sentence · Splitting cause of action · Split-up · Spoliation I spOwliyeyshanl · Spoliator I spOwliyeydar I · Spondeo I spondiyowI · Spontaneous combustion · Spontaneous exclamation · Sporting house · Sports franchise · Spot · Spot price · Spot trading · Spot zoning · Spouse · Spread · Spring-branch · Spring City Foundry Co · Spring water · Sprinkling trust · Sprlnkllng trust · Spurious bank-bill · Spurious class action · SpUt-off · SpUt order · Square block · Squatter's right · Squeeze-out · St · Stabilize prices · StabUize · Stages v · Stakeholder · Staking · Stale cheek · Stamp acts · Stamp duties · Stamp tax · Standard deduction · Standard established by law · Standard Min · Standard mortgage clause · Standard of care · Standard of need · Standard of proof · Standard Oil Co · Standing · Standing aside jurors · Standing by · Standing master · Standing mute · Standing orders · Standing seised to uses · Standing to be sued · Standing to sue doctrine · Staple inn · Star Chamber · Star Exp · Star page · Stash · Stat · State · State action · State Acts · State auditor · State Bank of Mountainair v · State banks · State bond · State Brd · State courts · State court systems of United States · Stated account · Stated capital · State Department · Stated meeting · Stated term · Stated times · Stated value · State ex rel · State ex rel · State Highway Commission v · State in force arranged according to subject matter · State legislatures · State Life Ins · Statement of account · Statement of affairs · Statement of claim · Statement of condition · Statement of confession · Statement of defense · Statement of Income · Statement of particulars · State must have at least one representative · State of Arizona v · State of being established · State office · State officers · State offices · State o f intoxication · State of marriage · State of mind · State of mind exception · State on Information of Eagleton v · State paper · State paper office · State police power · State property · State revenue · States · States army · State's attorney · States Code · State seal · State secrets · State's

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evidence · States ex rel · States Fire Ins · States is a party to such treaty · States mail · States Mint and its branches · States or an officer or agency thereof · State sovereignty · State's rights · States v · State tax · State tax courts · State v · Stating part of a bUl · Stationers' company · Station house · Status crime · Status of irremovability · Status quo · Statute fair · Statute-merchant · Statute of accumulations · Statute of allegiance de facto · Statute of distributions · Statute of Elizabeth · Statute of frauds · Statute of Gloucester · Statute of laborers · Statute of limitations · Statute of uses · Statute of will · Statute of wills · Statute roll · Statutes at large · Statutes of amendments and jeofailes · Statutes of distribution · Statute staple · Statutory bond · Statutory construction · Statutory costs · Statutory crime · Statutory crimes · Statutory damages · Statutory dedication · Statutory exception · Statutory exposition · Statutory extortion · Statutory foreclosure · Statutory holidays · Statutory instruments · Statutory interpleader · Statutory law · Statutory laws · Statutory lien · Statutory obligation · Statutory partnership association · Statutory penalty · Statutory presumption · Statutory rape · Statutory release · Statutory staple · Statutory successor · Stay laws · Stay of execution · Stay of proceedings · Stay order · Steady course · Stealing children · Stealing of cattle · Steamship Co · Steam Turbine Co · Steele v · Steerer · Steiner v · Step · Step-child · Step-down in basis · Stephens v · Step-in-the-dark rule · Step-parent · Stepped-up basis · Step-rate premium insurance · Step-up in basis · Sterilization · Steward of all England · Steward of a Manor · Stewart v · Stickier · Stick up · Still ready · Stipulate · Stipulation on majority verdict · Stirpital · Stlll · Stlllbom child · Stock association · Stock attribution · Stock bailout · Stockbroker · Stock certificate · Stock control · Stock corporation · Stock dividend · Stock exchange · Stockham v · Stockholder'S equity · Stockholders' equity divided by total asEquity security · Stockholder's liability · Stockholders' representative action · Stock insurance company · Stock in trade · Stock jobber · Stock Land Bank of Denver v · Stock law district · Stock life insurance company · Stock market · Stock note · Stock of merchandise · Stock option · Stock option contract · Stock options · Stock purchase plan · Stock redemption · Stock rights · Stock split · Stock subscription · Stock swap · Stock transfer tax · Stock warrant · Stolen · Stop · Stop and frisk · Stop-limit order · Stop-loss order · Stop payment order · Stop sign · Storage · Storehouse · Stores · Stores v

Stove Co · Stowaway · Straight annuity · Straight bill · Straight life annuity · Straight-line depreciation · Straight-line method · Straight mortgage · Straight or flat sentence · Strand · Strand v · Stranger · Straw ball · Straw bond · Straw man or party · Stray · Stream of commerce · Street Improvement Dist · Street name · Streets and highways · Strict and liberal construction · Strict construction · Strict foreclosure · Strict liability statute · Strict liabUity · Strictly construed · Strictly ministerial duty · Strict tort liability · Strikebreaker · Strike suits · Striking price · Strong · Strongly corroborated · Strong Mfg · Structural alteration or change · Structure · Sturdy v · Sturm v · Style · Subchapter S corporation · Subchapter S corporations · Subcontractor · Subdivision · Subftow · Subject matter Jurisdiction · Subjects · Subject to · Subject to being indicted · Subletting · Submerged lands · Submergence · Submission bond · Submission to jury · Subordinate · Subordinated bonds or debentures · Subordinate debenture · Subordinate officer · Subordination · Subordination agreement · Subpartner · SubpartnerShip · Subscribed capital · Subscribed stock · Subscription rights · Subscription Ust · Subsequent · Subsequent creditor · Subsequent negligence · Subservant · Subsidiary · Subsidiary and parent · Subsidiary corporation · Subsistence · Substantial · Substantial capacity · Substantial compliance rule · Substantial damages · Substantial equivalent of patented device · Substantial evidence · Substantial justice · Substantially · Substantially synonymous with ordinary or due care · Substantial performance · Substantive · Substantive due process · Substantive evidence · Substantive felony · Substantive offense · Substantive rights · Substituted basis · Substitute defendant · Substitute father · Substitution · Substitutionary evidence · Substitution of judgment doctrine · Substitution of parties · Subterranean waters · Subtraction of conjugal rights · Subversion · Subversive activities · Succession duty or tax · Succession tax · Successive · Successor in interest · Successors · Successor trustee · Such · Such agents are commonly used in narcotic investigations · Such a possibility may be sold or assigned · Such are invalid in many states · Such are not binding as precedent · Such as are

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due by ancient custom or prescription only · Such courts are now obsolete · Such courts exist in several states · Such defects may usually be cured by amendment · Such does not affect the negotiability of the instrument · Such estate as has descended in the same family · Such expenses are · Such include profits earned and invested · Such is made before judge's charge to jury · Such laws are seldom enforced · Such liens are generally governed by state statutes · Such party is a surety · Such pools are distinct from the practice of bookmaking · Such things as the mind alone can perceive · Sudden · Sudden emergency doctrine · Sudden or violent injury · Sudden peril rule · SUent partner · Sue out · Sueppel v · Suffering a recovery · Sufficiency of evidence · Sufficient cause · Sufficient consideration · Sufficient evidence · Suffocate · Suggest · Suggestion of error · SUght · Suing and laboring clause · Suitable · Suitable or appropriate · Suit against state · Suitas · Suit money · Suit of a civil nature · Suit of court · Suits · Suits in Admiralty Act · Suits or proceedings at law or in chancery · SUlcosls · Sullivan v · Sum certain · Sum In gross · Summarily · Summary conviction · Summary courts martial · Summary ejectment · Summary eviction · Summary judgment · Summary jurisdiction · Summary proceeding · Summary process · Summary trial · Summation · Summing up · Summit v · Summon · Summons and order · Sumner · Sum-of-the-year's digits method · Sum payable · Sunday closing laws · Sunday or holiday · Sundries · Sundry · Sunset law · Sunshine law · Sun v · Superflua · Superfluities d o not prejudice · Superintend · Superintendent · Superior agent · Superior and inferior courts · Superior courts · Superior fellow servant · Superior force · Superior to all other things · Supersedeas bond · Superseding cause · Supervening cause · Supervening negligence · Supervise · Supervision · Supervisory control · SUp law · SUp law print · SUp opinion · Supp · Supplement · Supplemental act · Supplemental affidavit · Supplemental answer · Supplemental bDl · Supplemental bill · Supplemental bill In nature of bill of review · Supplemental claim · Supplemental complaint · Supplemental pleading · Supplemental Security Income · Supplementary · Supplementary proceeding · Supplementary proceedings · Suppletory oath · Supply · Support · Support price · Supposition · Supposition or surmise · Suppress · Suppression · Suppression hearing · Suppression of evidence · SuppUer · SuppUes · Supremacy clause · Supreme · Supreme court of errors · Supreme Court of the United States · Supreme Judicial Court · Supreme law of the land · Surcharge and falsify · Surety and fidelity insurance · Surety bond · Surety company · Surety insurance · Surety of the peace · Suretyship bond · Surface · Surgeon General · Surgery · Surplusage does no harm · Surplus earnings · Surplus profits · Surplus water · Surrender by ball · Surrender by operation of law · Surrender of a preference · Surrender of charter · Surrender of copybold · Surrender of criminals · Surrender to uses of will · Surrender value · Surrogate court · Surrogate parent · Surround · Surrounding circumstances · Surtax · Surtax exemption · Surveying · Survey of a vessel · Surveyor of the port · Survival actions · Survival statutes · Survive · Surviving · Surviving partner · Surviving spouse · Survivorship annuity · Sus · Susceptible · Susceptible of being proved · Suspect · Suspect classifications · Suspended sentence · Suspension of a right · Suspension of arms · Suspension of a statute · Suspension of business · Suspension of sentence · Suspensory condition · Sustain · Sutherland v · SUver certificates · SUver platter doctrine · Swamp · Swamp and overflowed lands · Swanimote · Swatch · Swear · Swearing in · Sweat equity · Sweating · Sweat shop · Sweepstakes · Sweeteners · Sweetheart contract

Sweet v · Swift v · Swindall v · Swindle · Swindler · Swiss Nat · Switch-yard doctrine · SwlndllDg · Sworn · Sworn obedience or submission upon oath · Sworn statement · SwoUng of land · Symbolical delivery · Symbolic deUvery · Symbolic speech · Symmetry · Symond's inn · Sympathetic strike · Sympathy strike · Syncopare · Syndicating · Syndication · Syngraph I siggraef I · Synonymous · Synonymous distinguished · Synopsis · System · System Federation No

# T

T-account · Tacit acceptance · Tacit admissions · Tacit dedication · Tacit hypothecation · Tacit law · Tacit mortgage · Tacit relocation · Tack · Taft-Hartley Act · Tail after possibility of issue extinct · Tail female · Tail

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general · Tail male · Tail special · Take away · Take back · Take by stealth · Take care of · Take effect · Take-home pay · Take over · Take over bid · Take up · Taking into possession · Tallager luelQjQr I · Talley v · Tallies of loan · Tally trade · Taltarum's Case ItoltefQffiZ keysI · Tamper · Tampering with jury · Tangible · Tangible evidence · Tangible personal property · Tanistry luenastriy lOon I · Tapping · Tarde venit Itardiy viynatl · Tare IterI · Target company · Target offense · Target price · Target witness · Tath ItaOlteyOI · Tautology ItotolajiyI · Tax · Taxable estate · Taxable gift · Taxable income · Taxable year · Tax anticipation warrants · Tax assessment · Tax assessor · Taxation of costs · Tax audit · Tax avoidance · Tax benefit rule · Tax certificate · Tax Commission of Utah v · Tax court · Tax credit · Tax deduction · Tax-deed · Taxers · Taxes · Tax evasion · Tax exempt · Tax exempt bond · Tax exemption · Tax exempts · Tax ferrets · Tax foreclosure · Tax fraud · Tax-free exchange · Tax free reorganization · Tax home · Tax implications · Taxing district · Tax laws · Tax levy · Tax lien · Tax of flat amount per person · Taxpayer · Taxpayers' lists · Tax preference · Tax purchaser · Tax rate · Tax rate schedules · Tax rebate · Tax redemption · Tax return · Tax roll · Tax-sale · Tax shelter · Tax surcharge · Tax tables · Tax-title · Tax treatment · Tax warrant · Tax year · Taylor v · Teach · Teacher · Team or theame · Tearing of will · Technical battery · Technical errors · Technical mortgage · Teeling-penny · Teep I tiyp I · Tel · Telegram racket · Telegraph Co · Tellers in parliament · Tellgraphum I telagnefam I · Tellworc I telwark I · Temperance · Temporalities ItempaneladiyzI · Temporarily · Temporary administration · Temporary alimony · Temporary damages · Temporary detention · Temporary disability · Temporary dlsabDity · Temporary Emergency Court of Appeals · Temporary injunction · Temporary restraining order · Temporary statute · Tenancy · Tenancy at sufferance · Tenancy at will · Tenancy by the entirety · Tenancy for a period · Tenancy from month to month · Tenancy from period to period · Tenancy from year to year · Tenancy in common · Tenancy in coparcenary · Tenancy in partnership · Tenantable repair · Tenant at sufferance · Tenant at will · Tenant a volunte · Tenant by the curtesy · Tenant by the manner · Tenant for life · Tenant for years · Tenant from year to year · Tenant in capite · Tenant in chief · Tenant in common · Tenant in dower · Tenant in severalty · Tenant in tail · Tenant in tail ex provisione viri · Tenant of the demesne · Tenant paravaile · Tenant-right · Tenants by the verge · Tencon · Tender offer · Tender of issue · Tender of performance · Tenement house · Tenn · Tennessee Val · Tennessee Valley Authority · Tennessee Valley Authority v · TenserIle Itensiriyiy I · Tentative trust · Tenth Amendment · Ten times as much · Tenure by divine service · Tenured faculty · Tenure law · Term attendant on the inheritance · Term bonds · Term commonly refers to excessive bureaucracy · Termes de la Ley · Term fee · Term for deliberating · Term for years · Term implies intent or purpose to injure · Terminable interest · Terminate · Terminating building societies · Termination · Termination of conditional contract · Termination of employment · Term includes a guarantor · Term in gross · Term insurance · Term loan · Term of court · Term of lease · Term of office · Term policy · Term probatory · Terms of trust · Terms to be under · Term to conclude · Term to propound all things · Term used in worker's compensation computations · Terra vestIta Itehra vastaycbl · Terrible Min · Territorial · Territorial courts · Territorial Jurisdiction · Territorial property · Territorial waters · Territory of a judge · Terroristic threat · Terroristic threats · Terry v · Terstegge Co · Test act · Test action or case · Testa de nevil Itesb da nevalJ · Testamentary capacity · Testamentary character · Testamentary class · Testamentary disposition · Testamentary gift · Testamentary guardian · Testamentary law · Testamentary paper or instrument · Testamentary power · Testamentary succession · Testamentary trust · Testamentary trustee · Testamentum I testamentam I · Testari Itesteray I · Testate ItesteytI · Testate succession · Testation I testeyshan I · Testator Itesteydar I · Testatum I testeydam I · Testatus Itesteydasl · Teste · Teste melpso Itestiy miyipsow I · Testimonial evidence · Testing and Materials v · Test oath · Test-paper · Tests · Tex · Texas Co · Texas Employers Ins · Texas v · Thackray v · Tharel v · That · That he account · That is a cursed interpretation which corrupts the text · That of which there is hope · That the parties do replead · That which actually produces it · That which begins or stands at the beginning · That which cannot be revoked or recalled · That which cannot be understood · That which has become united with or a part of · That which is added to a thing to comSee also Amendment · That which is contra

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bonos mores · That which is done or to be done · That which is indispensable · That which is no longer used · That which is openly declared · That which is refunded · That which is susceptible of being divided · That which may be taken away or subtracted · That which supplies a deficiency · That without which the thing cannot be · That you cause · That you cause to have a view · Thavies inn · Thaw v · The abbreviation et al · The act by which a woman is deprived of her virginity · The actions must be against a single defendant · The act of depriving of a crown · The act of forging · The act of giving place · The act of killing · The act of killing one's father · The act of laying out or adjusting a line · The act of lending money on usury · The act of lending money or usury · The act of making or commissioning a delegate · The act of resisting opposition · The act or fact of paying or being paid · The act or process of deliberating · The act or process of forming or creating a corporation · The act or state of exposing or being exSee Expose · The administrative body which govCounty board of equalization · The bailor of an article loaned · The barbarian law · The black book of the king's household · The Book of Assizes or pleas of the crown · The breaking of the peace

The brother of one's father or mother · The business or duty of a paPatrolman · The cause being removed the effect ceases · The chiefest part o f everything is the beginning · The clause of Art · The collected body of yeomen · The college o r society o f the admiralty · The commander of an army · The command of a writ of certiorari · The commencement or inauguration of a sovereign's reign · The common law · The company of wicked men makes me also wicked · The company then undertakes to collect them · The contract makes the law · The count or counting of money · The court o f parliament i s governed by its own laws · The courts of a foreign state or nation · The crop on the ground · The custom in Essex county · The dead body of a human being · The decision of a court or administrative agency · The decision of an umpire · The defendant in an action · Th e demesne lands o f the crown · The description of a corporal oath · The destruction of evidence · The deThe granting or denying of remedy sought · The disbarring of an attorney · The distinction was abolished by Justinian · The drawer of a bill of exchange · The effect follows the cause · The elder · The emphatic word in the ancient deeds of confirmation · The end o f a thing is t o b e attended to · The estimated worth of a thing · The extremity or rigor of the law · The father of a family · The father of either of one's parents · The father of one's grandfather or grandmother · The father of one's wife or husband · The father's religion is prima facie the infant's religion · The flrst letter of a person's name · The forces of nature · The form and shape o f judgment or judicial action · The form of making an appeal apud acta · The form of proposing a law to the Roman people · The form used at the taking of an oath · The fortieth · The founding or building of a college or hospital · The Fourth Amendment t o U · The fourth part of an acre of land · The fourth part of an English penny · Theft by false pretext · Theft of services · The full weight of twenty ounces · The general plea in the writ of annuity · The generation of children · The grandson of a grandson or granddaughter · The grantee in a deed of conConfirming bank · The greater number · The hearing and investigation had before an auditor · The holder of a right · The homager's oath in the black book of Hereford · The husband of one's daughter · The illness terminating in person's death · The immediate agent in the production of an effect · The incursion of an army for conquest or plunder · The inhabitant of a bourg · The inhabitants of an electoral district · The intenThe intent with which · The introductory word of many Latin phrases · Their jurisdiction is entirely penal and disciplinary · The killing of a woman · The king · The king ought to be under no man · The king's bench was so called during the Protectorate · The king's court · The land adjacent to a river · The last moment of life is the moment of death · The law always abhors delays · The law does injury to no one · The law favors the life of a man · The law of citations · The law of exchange · The law of nations · The law of nature · The law of the domicile · The law of the land · The law of the Mercians · The law of the place where a contract i s made · The law of things · The law of war · The law pays regard t o equity · The law punishes falsehood · The law regards the order of nature · The law will always give a remedy · The law works injustice to no one · The leading English case of Indermaur v · The legal relation of individual to rest of the community · The local is the bargaining unit of the union · The lords of manors · Thelusson Act · The meeting o f minds · The mercantile and naval shipping of a country · The more

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worthy contains in itself the less worthy · The mother of either of one's parents · The mouth of a river · The name has also been given to certain enactments · The name of several high officers of state in England · Then and there · The natural sense given to words · Thence down the river · The neglect to perform what the law requires · Theodosian and Justinian Codes · Theodostanus · The office of a curator or guardian · The office of a deacon · The office of an agent or attorney · The officer next in rank above a captain · The officer who superinTrivial · The old code · The old form of justice · The one is positive and the other negative · Theophilus ' Institutes · The opinion of a court of law o n a special case · The opposite of matter of form · The order for payment of taxes · The origin of a thing ought to be regarded · Theory of case · Theory of law · Theory of pleading doctrine · The party not having appeared · The party who makes a covCovenants performed · The payment of royalty under a mineral lease · The perpetual edict · The person by whom a grant is made · The person on whom a bill or draft is drawn · The person to whom a release is made · The person to whom a surrender is made · The person who draws a bill or draft · The person who makes a bargain · The pillory · The place in which · The place of meeting of a municipal corporation · The place where electors cast i n their votes · The policy making body of the United Nations · The praetorian law · The primary operating fund of a governmental unit · The principal officers of a forGrub stake · The principle o f anything i s its most powerful part · The privilege of taking such amercements · The property of which the trust consists · The proper words to express a condition in a conveyance · The province of a court or judge · The Queen · The queen's bench · There · Thereabout · Thereafter · The real actions of the Roman law were not · The realization of the revenue · The reason of law is the soul of law · The reason or material cause of a contract · Thereby · The reeve or chief officer of a town · Therefor · The refusal of admission · The regarder's office in the forest · Therein · There is n o rule but what may fail · There is nothing · The relation of child to father · The relative incidence of death · The repudiation of a former transaction · The residue · The result is a mistrial of the case · The return of a sheriff was so called · The right of a third party · The right of cutting wood · The right o f hunting and fishing · The right of possession · The right of voting at public elections · The right to be put in actual possession of property · The rising water or increase of the sea · The royal or imperial law · The ruler of a church · The rules of conduct that govern the legal profession · The same as ComAccompany · The same as feud or fief · The scheme is one form of a lottery · The science or doctrine of diseases · The sealer of the royal writs · The seeking after a commodity or service · These penalties were abolished in England by St · The share of the eldest · The silence of a party implies his consent · Th e source of income · The spiritual head and presiding officer of church · The state of being notorious or universally well known · The state of being so laid out or adjusted · The system of feuds · The temporal rights and privileges of a bishop · The tenant of a particular estate · The term is also used of flotsam at sea · The term is commonly held to include only legitimate issue · The term is generally synonymous with real property · The term is opPlowman 's fee · The term is synonymous with governmental purpose · The term is used in various senses · The title given to William of Normandy · The title of the sovereign ruler of an empire · The toll of a market · The transfer of authority by one person to another · The tribute or toll itself · The trodden path is the safest · The upper bench · The upper part of a town · The vacation between two terms of a court · The value at common law was twelve pence · The value of a head · The value of a leasehold interest · The various forms of an action of assumpsit · The verdict rendered by a jury · The whole amount of votes cast · The whole of a thing which is to be done · The withholding or denial of justice · The word has no technical legal meaning · The word is now entirely obsolete · The word is susceptible of latitudinous construction · The words with which the foot of a fine commenced · The writ of statute merchant · They are precedent or subsequent · They were not attached to any local j urisdiction · Thin capitalization · Thin corporation · Things alleged and proved · Things are construed according to the end · Things in action · Things of value · Things personal · Things real · Thingus · Think · Third degree · Third market · Third-night-awn-hinde · Third parties · Third party · Third party beneficiaries of warranties · Third party beneficiary · Third party claim proceeding · Third party complaint · Third-party practice · Thirteenth Amendment · Thirty-day letter · ThIs day six months

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· This form of the word is used by the feudal writers · This is an agreement · This law was abrogated by Justinian · This outland they subdivided into two parts · This power was exclusively vested in the king · This practice is not in use in the United States · This rule is also applicable to wills and trusts · This statute is now repealed · This term is applied by the civilians to obsolete laws · This term is obsolete · This word is used · This word is used in two different senses · This word was anciently used for an addition · Thomas v · Thomes v · Thompson v · Thornhill v · Those born after · Those offspring incestuously begotten · Those reasonably necessary for administration of justice · Thrave · Threatening letters · Three-Judge courts · Three-mile limit · Threnges · Through bill · Through blll of lading · Through lot · Throwback Rule · Thrown from automobile · Thus · Ticket of leave · Ticket-of-leave man · Ticket speculator · Tideland · Tide lands · TIdesmen · Tide-water · Tide waters · Tideway · TIed product · TIe-in arrangement · Tierney v · Tigh Itay I

Tihler · Tillable land · Timber lease · Time Act · Time-bargain · Time bill · Time charter · Time deposit · Time draft · Time eacQ · Time for the locality · Time is the essence of contract · Time loan · Time note · Time of memory · Time order · Time out of memory · Time-policy · Times Co · Timmons v · Tip · Tippees · Tire Sales Corp · Tithe · Tithe-free · Tithe rent-charge · Title by adverse possession or prescription · Title by descent · Title by limitation · Title by prescription · Title defective in form · Title defective in form cannot be basis of prescription · Title documents · Title guaranty company · Title Ins · Title insurance · Title of a cause · Title of an act · Title of declaration · Title of entry · Title of record · Title registration · Title retention · Title search · Title standards · Title to orders · Title transaction · Tlll-tapping · To abate · To abstract and enter in a book · To adjoin · To admit the truth of a charge or accusation · To announce or file an opinion in a cause · To arrive at a determination · Tobacco Growers' Ass'n v · To be contrasted with competitive advertising · To be ignorant of the law is gross neglect · To be inherent · To be in need of · To be knighted · To be or become liable to a joint obligation · To be paid in the future · To be right in court · To bind · To bring about a loan · To bring about or into existence · To buy back · To carry or to send abroad · To catch · To cause to spread · To claim kindred · To compare great things with small things · To conceal · To continue · To copy in final draft · To corrupt or defile · To court · To cripple or mutilate in any way · To cut in a serrated or wavy line · To defend · To demise or lease a certain properSee Lease · To deny a thing · To determine · To disable a person · To discourage or stop by fear · To discredit one's person or property · To dismiss dishonorably from service · To dismiss or discharge from a position or employment · To disprove · To do away with or nullify or lessen or diminish · To dub or make a knight · To end or finish a matter · To enjoin · To enlarge or increase · To examine judicially · To excite a prejudice · To exculpate · To expel or banish · To fall or fail · To fee farm · To flood or swamp · To follow up step by step by patient inquiry or observation · To forswear the country · To free from difficulty or impediment · Togati Itowgeyday I · Together · Together with · To give evidence to prove one a bastard · To give personal assurance or serve as a guarantee · To grant or covenant · To hear or try causes · To hint or suggest doubt or suspicion · To hold goods for future sale · To incline in opinion or preference · To join i n aid · Token-money · Tolerate · Toleration Act · To let for a term at a stated rental · To liquidate or render certain · Tollage · Tolldlsh · Tollsester Itowlsesbr I · Tolzman v · To make a suit his own · To make legal or lawful · To make proof of a thing · Tombstone ad · Ton · Ton mile · Tonnage tax · Tontine I tontiyn I · Too great certainty destroys certainty itself · Took and carried away · To operate or take effect · To oppose · To pay · To pay the penalty · To pick pockets · To place under the protection of the law · To plant O'r establish · Top lease · To pledge or mortgage lands · To pledge property as security or collateral for a debt · Topliff v · To possess or exercise authority · To postpone · To procreate as the father · To prohibit or forbid · To question or hold questionable · To receive from a specified source or origin · To recur · To redeem from mortgage · To remove from the operation of the forest laws · To retain earnings for continued investment in the business · Tort claims acts · Torts · Tory · To save and protect from loss o r damage · To scandalize or disparage · To set apart from others · To set a price or value on a thing · To set down by items · To settle or become situated or established · To shut up · To solicit alms or charitable aid · To speak in favor of o r defend by argument · To stretch out or to draw out Crane Enamelware Co · To take · To take

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away anything by force · To take away surreptitiously by force in kidnapping · To take back · To take over for collection · To take to one's use or profit · To take to or upon one's self · Total · Total disability · Total eviction · Total incapacity · To the middle thread of the stream · To the value · To this was annexed · To totally consume or exhaust · To transfer interest or title · Totten trust · Touch and stay · Touma v · To use obscene or profane language · Tout Ituw I · Towage · Towage service · Toward · To warn or summon · To watch or listen to secretly · Town bouse · Town-clerk · Town collector · Town commissioner · Town-crier · Towne v · Town-hall · Town-meeting · Town of Refugio v · Town order or warrant · Town pound · Town purpose · Town-reeve · Township · Township trustee · Townsite · Town tax · Town treasurer · Toxical · Toxicology · Tracing · Trade acceptance · Trade agreement · Trade and commerce · Trade association · Trade commission · Trade discount · Trade dispute · Trade dollar · Trade fixtures · Trade-mark · Trade-marks and trade names · Trade-name · Trade-name distinguished · Trade of Chicago v · Trader · Trade secret · Trade-union · Trade usage · Trading corporation · Trading corporations · Trading partnership · Trading stamps · Trading voyage · Trading with the enemy · Traditio brevi manu · Traditio clavium · Traditio longa manu · Traditionary evidence · Traditio rei · Traffic balances · Trafficking · Traffic regulations · Trailer · Tramp corporations · Tramp steamer · Transacting business · Transaction or occurrence test · Transcript of record · Transfer agent · Transferee liability · Transference of property from one person to another · Transfer in contemplation of death · Transfer of a cause · Transfer of property for other property · Transferor · Transfer payments · Transferred intent · Transfer tax · Transfer ticket · Transient foreigner · Transient merchant · Transient person · Transit · Transit Co · Transitive covenant · Transitive or intransitive · Transitory · Transitory action · Translado Itranslaoow I · Transmit · Transp · Transport Ins · Trap · Travall I tneveyl I tfllveyl I · Travel · Travel Act · Traveled part of highway · Traveled place · Traveled way · Traveler'S check · Travelers' Ins · Traveler's letter · Traveler's letter of credit · Travel expenses · Traverse jury · Traverse of indictment or presentment · Traverse of office · Traverse upon a traverse · Treachery · Treasonably · Treason-felony · Treasurer of the United States · Treasury bench · Treasury bill · Treasury bond

Treasury bonds · Treasury certificate · Treasury certify in writing their consent to discharge · Treasury Department · Treasury note · Treasury Regulations · Treasury securities · Treasury shares · Treasury stock · Treasury warrant · Treaswy securities · Treatment · Treaty clause · Treaty of peace · Treaty power · Trengen v · Trenton Banking CO · Trent to denote a hundred · Trespass ab initio · Trespasser from the beginning · Trespass on the case · Trespass to chattels · Trespass to land · Trespass to try title · Trestomare Itrestameriyl · Tresvtrl Itriyzwray I · Trial balance · Trial brief · Trial by certificate · Trial by court or judge · Trial by fire · Trial by Grand Assize · Trial by jury · Trial by news media · Trial by proviso · Trial by record · Trial by the record · Trial by wager of battel · Trial by wager of law · Trial by witnesses · Trial calendar · Trial court · Trial courts · Trial de novo · Trial jury · Trial list · Trial of substantive issues in case · Trial per pais · Trial practice · Trials of civil as distinguished from criminal cases · Tribal lands · Tribute Itnbyuwtl · Triding-mote ItraydiIJIllowt I · Trier of fact · Trifurcated trial · Trigild · Trinity Masters · Trinity tenn · Tripartite I traypartayt I · TRO · Trophy · Troy weight · Truancy · Truce of God · True admission · True bill · True copy · True value · True value rule · True verdict · Trust · Trust allotments · Trust certificate · Trust Co · Trust company · Trust deed · Trust deposit · Trustee ad litem · Trustee de son tort · Trustee ex maleficio · Trustee in bankruptcy · Trustee process · Trustees of Campbellton Consol · Trust estate · Trust estates as business companies · Trust ex delicto · Trust ex maleficio · Trust fund · Trust fund doctrine · Trust fund theory · Trust Indenture · Trust Indenture Act · Trust in invitum · Trust instrument · Trust insurance · Trust law · Trust legacy · Trust officer · Trust property · Trust receipt · Trust res · Trusts · Trust territory · Trusty · Truth · Truth-in-Lending Act · Truth-In-LendlDg Act · Tsar · Tucker Act · Tuel v · Tuerto Itwertow I · Tullianum I taliyeynllm I · Tunnage · Turf and twig · Turncoat witness · Turner v · Turning State's evidence · Turn-key contract · Turntable doctrine · Tutel · Tuteur · Tuteur offlcieux · Tuteur subroge · Tutorship by nature · Tutorship by will · Twa night gest Ituwnayt gestl · Twelfth Amendment · Twelve-month bond · Twelve-month

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liquidation · Twentieth Amendment · Twenty-Fifth Amendment · Twenty-First Amendment · Twenty-Fourth Amendment · Twenty-Second Amendment · Twenty-Sixth Amendment · Twenty-ThIrd Amendment · Twice · Twilight · Twisting · Two Issue rule · Two witness rule · TyIng · TyIng arrangement · Tying contract · TyIwlth · Typ e A reorganization · Type of business that is owned by its customers · Type of wholesaler described above · Types of acceptance · Types of action

# U

Uability bond · Uability for intentional intrusions on land · UabUity created by statute · UabUity for damages · Ubellus supplex · Ubel of review · Uberty · Ucense · Ucense fee or tax · Ucensing power · Ucentiate I lasenshatl laysenshiyeytl · Ucentiousness I lasenshasnas I · Ucere Ilasiriy I · UDlted States currency · Ue In franchise · Ue In grant · Ue In Overy · Ue In wait · Uen account · Uen creditor · Uenee Illyniy I · Uen of a covenant · Uen of factor at common law · Uen waiver · Ue to · Ueu lands · Ueu tax · Ufe Ins · UFO · Ught · Ughterage · Uke · Uke benefits · Uke character · Uke-kind exchange · Ukelihood · Ukely · ULA · Ulterior · Ultimate · Ultimate issue · Umbrella policy · Umftation · UmitatIon of prosecutions · UmitatIon of UabWty Act · Umited · Umited administration · Umited admissibility · Umited appeal · Umited court · Umited divorce · Umited executor · Umited fee · Umited guaranty · Umited or special jurisdiction · Umited owner · Umited partner · Umited partnership · Umited payment plan · Umited policy · Umited power of appointment · Umited warranty · UmIne · Un- · Unanimous · Unascertained · Unauthorized · Una uthorized indorsement · Unauthorized signature · Unauthorized use · Unavailability · Unavoidable · Unavoidable casualty · Unavoidable cause · Unavoidable dangers · Unborn beneficiaries · Unborn child · Unbroken · Unbroken packages · Uncertain things are held for nothing · Unchastity · Unclaimed property · Unclean hands doctrine · Unconditional · Unconditional discharge · Unconscionable contract · Unconscious · UnconsclonabIlity · Uncontrollable · Undbergh Act · Under · Under another's control · Under color of law · Under control · Undercover agent · Undercurrent or underflow of surface stream · Under English St · Under Fed · Underflow · Underground Const · Underground waters · Under-insurance · Under or within a year · Under protest · Understand · Undertake · Undertaker · Undertakers of suits · Under terms · Under the influence of intoxicating liquor · Under-treasurer of England · Underwrite · Undisclosed agency · Undisclosed principal · Undisputed · Undistributed profits · Undistributed profits tax · Undivided profits · Undivided right · UndIstrIbuted profits · UndIstrIbuted profits tax · UndIvIded profits · Undue · Une · Uneal descendant · Uneal descent · Uneals · Uneal warranty · Unearned income · Unearned increment · Unearned premium · Unearned surplus · Uneducated · Unemployment · Unemployment and worker's compensation · Unemployment compensation · Unemployment insurance · Une of credit · Unequal · Unerring · Unes and comers · Unethical · Unethical conduct · Uneup · Unexceptionable · Unexpected · Unexpired term · Unfair competition in trade · Unfair hearing · Unfair labor practice · Unfair methods of competition · Unfair trade practices · Unfalthtul · Unfit · UnflnIshed · Unforeseen · Unharmed · Unification of several outConsolidated securities · Unified · Unified credit · Unified transfer tax · Uniform Arbitration Act · Uniform Child Custody Jurisdiction Act · Uniform Code · Uniform Code of MIlitary Justice · Uniform Commercial Code · Uniform Consumer Credit Code · Uniform Controlled Substances Act · Uniform Divorce Recognition Act · Uniform Gifts to MInors Act · Uniform Laws or Acts · Uniform Partnership Act · Uniform PrIncIpal and Income Act · Uniform State laws · Unify · Unilateral and bilateral · Unimproved land · Uninclosed place · Unincorporated association · Uninsured motorist coverage · Union Baptist Ass'n v · Union Casualty Co · Union Cent · Union certification · Union contract · Union Free School Dist · Union mortgage clause · Union Oil Co · Union rate · Union security clause · Union shop · Union Trust Co · Union Ufe Ins · Unissued stock · Unit · Unitas persolUll'UDl · Unite · United Commercial Travelers of America v · United Factories v · United in interest · United Kingdom of Great Britain and Ireland · United Nations · United States · United States and foreign countries · United States Attorney · United States but held in trust for the Indian tribe · United States Code · United States Code Annotated · United States Courts · United States District Court · United States ex rel · United States

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Untoward event · Untrue · Unusual · Unusual punishment · Unvalued polley · Unworthy · Uoyd's bonds · Uoyd's insurance · Uoyd's of London · Uoyds underwriters · UPA · Upkeep · Uplands · Upset bid · Upset price · Upton v · Uquidated claim · Uquidated damages · Uquidated debt · Uquidated demand · UquidatiDg distribution · UquidatiDg partner · Uquidation · Uquidation dividend · Uquidation price · UquidatlDg trust · Uquidator · Uquidity · Uquld · Uquld assets · Uquldate · Uquldated · Uquldated account · Uquor · Uquor offenses · Urban · Urban renewal · Usage distinguished · Usage of trade · Use and habitation · Use and occupation · Used in contrast to apTrial on merits · Used in foreign trade · Used particularly with reference to evidence · Usefulness · Useful ute · Use immunity · Useless power is to no purpose · Use of C · Use plaintiff · Use tax · Use value · Use variance · Using mail to defraud · Using tlie service of another for pay · Uso luwsow I · Ust · Usted · Usters · Usting · Usual course · Usual covenants · Usually a net lease · Usually applied to ownership of property · Usually concerned with easements and covenants · Usually written impromptu · Usual place of abode · Usual terms · Usurious contract · Usurire centesimre · Usurped power · Usurper of a public office · Us ury la ws · Ute pendente Ilaydiy pandentiy I · Uteracy means ability to read and write · Uteral construction · Uteral contract · Uteral proof · Uterary composition · Uterary IUdarehriy I · Uterary property · Uterary work · Uterate · Uti fruI lyUwday fniway I · Utigant · Utigare llidQgeriy I · Utlagatus est quasi extra legem positus · Utlage · Utlesse · Utmost care · Utmost resistance · Utterance · Uttering · Uttoral · Uttoral rights · UtUlty · Uvelode · Uvery conveyance · Uvery in chivalry · Uvery office · Uvery of seisin · Uves in being · Uvestock · Uvestock insurance · Uve storage · Uving · Uving apart · Uving at time of another's death · Uving in open and notorious adultery · Uving issue · Uving separate and apart · Uving together · Uving trust · Uving with husband

# V

Va · Vacant · Vacation of judgment · Vagrancy · Vagrancy laws · Vagrant act · Vague · Vagueness doctrine · Validate · Validating statute · Validity of a treaty · Validity of a will · Valid reason · Valley · Valley Authority v · Valley R · Valley Waste Mills v · Valuable · Valuable improvements · Valuation Hst · Valued policy · Valueless · Value of matter in controversy · Value of property for insurance purposes · Value received · Vandalism · Van Overbeke v · Vans Agnew v · Van Santvoord v · Vargas v · Variable annuity · Variable rate mortgage · Various · Vas Ivlisl · Vassal states · Vaudeville · Vaughan Novelty Mfg · Vdal · Vecorin · Vehicular

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homicide · Vejours · Vendetta · Vendor's lien · Venit et defendit lviynxl et dafendatl · Vente A remere Ivont a reyrnerey I · Vente aux encheres Ivont owz onsher I · Ventre Insplclendo Iventriy inspishiyendow I · Venue does not refer to jurisdiction at all · Venue facts · Venue jurisdiction · Veracity · Verbal act doctrine · Verbal assaults · Verbal injury · Verbal note · Verbal process · Verdict by lot · Verdict contrary to law · Verdict subject to opmlOn of court · Verified copy · Verified names · Verna IvQrnal · Versari Ivarseray I · Vertical integration · Vertical merger · Vertical price-fixing contract · Vertical trust · Vertical union · Very · Very high degree of care · Vested devise · Vested estate · Vested gift · Vested in interest · Vested in possession · Vested interest · Vested legacy · Vested pension · Vested remainder · Vested rights · Veteran · Veterans Administration · Veterinarian · Veto power · Vexatious Actions Act · Vexatious delay or refusal to pay · Vexatious proceeding · Vexatious refusal to pay · Viable child · Viable chlld · Vicar general · Vicarious liability · Vice-admiral · Vice-admiral of the coast · Vice-admiralty courts · Vice-chamberlain · Vice-chancellor · Vice-comes · Vice-comitissa · Vice-commercial agent · Vice-constable of England · Vice-consul · Vice crimes · Vice-dominus episcopi · Vice-geren t · Vice-judex · Vice-marshal · Vice-President of the United States · Vice principal · Viceroy Ivaysroy I · Vice-versa · Vicinity · Vicious propensity · Victim · Victimless crimes · Victoria · Vide Ivaydiy I · Viduity lvidyUwadiy I · View and delivery · View of an Inquest · View of frank-pledge · Vigllant · Vigor lvigar I · VIII · Village of Hoffman Estates v · Villeins or bondmen by contract or agreement · Vincent v · Vinculacion I vinkuwlasyown I · Vindex I vindeks I · Vindicate · Vine Street Corp · Violation or invasion of legal right · Violent death · Violent offenses · Violent presumption · Virtue of offlee · Visalia v · Vis a vis lviyzaviy I · Viscount Ivaykawntl · Vise lviyzey I · Visible · Visible means of support · Visitation rights · Visitors to Prisons · Vista Irr · Vital statistics · Vitllgate · Vlndlcare Ivincbkeriy I · Vocation · Voice exemplars · Voice Identification · Voiceprint · Void ab initio · Voidable contract · Voidable judgment · Voidable marriage · Voidable preference · Void contract · Void judgment · Void legacy · Void marriage · Void on its face · Void process · Void tor vagueness · Voir dire Ivwar dirl · Voiture Ivwotylir I · Volstead Act · Voluntarily · Voluntariness · Voluntary abandonment · Voluntary assignment · Voluntary conveyance · Voluntary courtesy · Voluntary discontinuance · Voluntary dismissal · Voluntary exposure to unnecessary danger · Voluntary Ignorance · Voluntary jurisdiction · Voluntary manslaughter · Voluntary payment · Voluntary settlement · Voluntary trust · Voluntazy sale · Volunteers in Service to America · Voting by ballot · Voting Rights Act · Voting security · Voting stock · Voting stock rights · Voting tax · Voting trust · Vouchee Ivawchiy I · Vouching-In · Voyage charter · Voyage policy · Voyeurism · Vt

## W

Wabash Ry · Wacreour · Wage and hour laws · Wage assignments · Wage earner's plan · Wage garnishment · Wagering contract · Wagering gain · Wager of battel · Wager of law · Wager policy · Wager poUcy · Wager v · Wagner Act · Wagner v · Wagonway · Waiting period · Waiver distinguished · Waiver of exemption · Waiver of immunity · Waiver of premium clause · Waiver of protest · Waiver of tort · Walker v · Walk out · Wallace v · Walsh-Healey Act · Walt and see doctrine · Walter J · Wander · Wandling v · Want of consideration · Want of jurisdiction · Want of repair · Wanton act · Wanton acts and omissions · Wanton and reckless misconduct · Wanton conduct · Wanton injury · Wanton misconduct · Wanton negligence · War clauses · War contracts · War crimes · Ward · Wardage · Ward-fegh · Ward-hom · Ward-In-chancery · Ward-mote · Ward-penny · Wardship · Wardship in chivalry · Wardship in copyhoJds · Wards of admiralty · Wards of court · Ward-staff · Warehouse book · Warehousemen's lien · Warehouse receipt · Warehouse system · Ware v · Warning · Warning to one to be careful · War power · Warrant · Warrant creditor · Warrantless arrest · Warrant of arrest · Warrant of attorney · Warrant of commitment · Warrant officer · Warrant officers · Warrant of merchantability · Warrant to sue and defend · Warranty deed · Warranty of fitness · Warranty of habitability · Warranty of title · Warren Co · Warren Corporation v · War risk insurance · Warsaw Convention · Wash bank · Washington county · Washington Toll Bridge Authority v · Washout signal · Wash transaction · Wastel Iwosbl I · Waste o f a forest o r wood · Waste water · Wasting asset · Wasting

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assets · Wasting property · Wastors Iweysbrz I · Water-bayley · Water Conservation Dist · Water district · Watered stock · Water front · Water-gage · Water-gang · Water-gavel · Water-logged · Water ordeal · Water power · Water Power Co · Water rights · Waterscape · Water Service Corporation V · Watershed Imp · Waters of the United States · Waterway · Waterworks Co · Watson v · Watts v · Watt v · Watuppa Reservoir Co · Wauregan Mills Inc · Waxmann v · Way · Waybright v · Wayleave · Way of necessity · Ways and Means Committee of the House · Weak or barren land · Wearing apparel · Webb-Pomerene Act · Weber County v · Wedbedrlp · Wedlock · Week-work · We erect · Wehading · Weight of evidence · We incorporate · Welfare clause · Well-born men · Wells Lamont Corp · Welsh mortgage · Wend · Weotuma · Wernberg v · West Coast Hotel Co · Western-Knapp Engineering Co · Western Union Tel · Westinghouse Electric and Mfg · Weston v · West v · WeUare · Wffi contest · Whack · Wharton Rule · Whatever i s done i n excess i s prohibited by law · What is necessary is lawful · What is not read is not believed · What is understood is not wanting · Wheat Farming Co · Wheeler v · When · When in fact · When Issued · When used in constitution of benefit society · Whepley Oil Co · Where · Where a court relieves on the ground of surprise · Whereby · Wherefore he broke the close · Where thing is extinguished from mind · Whereupon · Whetefore he binders · Whichever way you take it · Which was granted · Which was not denied · While · Whim · WhIplash injury · WhIpping · WhIpping-post · WhItecaps · WhIte-collar crimes · White foreign · White mule · White persons · White slave · White Tower System v · White v · Whitney v · Whiton v · Whole · Whole chest · Whole life insurance · Wholesale dealer · Wholesale price · Wholesaler · Wholesome · Wholly · Wholly and permanently disabled · Wholly dependent · Wholly destroyed · Wholly disabled · Whoremaster · Wic · Wica · Wichita Valley Ry · Wick · Wickedness is not presumed · Widen · Widow's allowance · Widow's election · Wife of one's son · WIfe's part · Wight · Wight v · Wild animals · Wild beasts · Wildcat strike · Wilful tort · Wilkinson v · Wilkins v · Willful · Willful neglect · Willoughby v · Wills · Will substitutes · Window tax · Wind up · Wing Quong v · Winkelman Bros · Wiretapping · Wirt v · Wirtz v · Wise v · Wish · Witekden · With · With all necessary exceptions · With consent · Withdraw · Withdrawal · Withdrawal of charges · Withdrawing a juror · With effect · With force and arms · Withheld sentence · Withhold · Withholding · Withholding of evidence · Withholding tax · Within · Within a reasonable time · Within the defenses · Within the inn · Within the state · Within the walls · Without · Without another or others · Without day · Without delay · Without expense · Without giving compensation therefor · Without her consent · Without making a will · Without notice · Without the conssent o f the chapter · Without the intention o f returning · Without this · With prejudice · With recourse · With that intent · With the intent or view of evading the law · With the marks of crime fresh on him · Witness · Witnesses · Witnessing part · Witness to will · Wittingly · Wm · Wolff Packing Co · Wolf v · WOliams Act · Wolkoff · Wong Sun v · Wood-corn · Wood v · Woody land · Woolum v · Words actionable in themselves · Words are always to be taken in the milder sense · Words of art · Words of limitation · Words of limitation in old conveyances · Words of procreation · Words of purchase · Words used formerly in bonds · Words with which letters of attorney anciently commenced · Work · Work and labor · Workaway · Worker

Worker's Compensation Act · Workers' compensation acts · Worker's compensation insurance · Workers union · Working capital · Working-hours plus reasonable periods for ingress and egress · Working interest · Working papers · Workmen's Compensation Programs · Workmen's or Workers' Compensation Acts · Workmen's or workers' compensation boards or courts · Workmen's or workers' compensation Insurance · Work of national importance · Work of necessity · Work release program · Works v · Work week · World · World Court · Worldly · Worrying cattle or sheep · Worth · Wortham v · Worthless · Worthless check · Worthless securities · Worthy · Wort or worth · Would · Wrap around mortgage · Wrath · Wrench · Wrinkle · Write-off · Write-up · Writ for acquitting o r releasing pledges · Writ for admitting a guardian · Writ for electing a coroner · Writ for exoneration o f suit · Writ for fixing reasonable boundaries · Writ for having a corody · Writ for making execution in withernam · Writ for proving property · Writ for removing a guardian · Writ for repairing a causeway · Writ of account · Writ of capias · Writ of certiorari · Writ of champerty · Writ of deUvery · Writ of ejectment · Writ of error · Writ of escheat · Writ o f exemplification · Writ of free fold ·

Writ of habeas corpus · Writ of maintenance · Writ of mandamus · Writ of privilege · Writ of probable cause · Writ of prohibition · Writ of quare impedlt · Writ of quo warranto · Writ of redisseisin · Writ of replevin · Writ of threats · Writ of tolt · Writ oftprocess · Writ or process · Written contract · Written instrument · Written questions · Written request to the court after notice · Written warranty · Writ to take caution or security · Wrongful · Wrongful abuse of process · Wrongful act · Wrongful conduct · Wrongful death action · Wrongful death statutes · Wrongful levy · Wrongful life action · Wrongfully · WUlfuUy and knowingly · WUlfuI and wanton injury · WUlfuI misconduct of employee · WUlfuI murder · WUlfuI neglect · WUlfuI negligence · WUlfuI or wanton misconduct · WUlfuI indifference to the safety of others · WUlfulness · WUlIngly · Wyck v · Wyoming

## Y

Yarber v · Year and a day rule · Year and day · Yearb · Year Books · Year-end dividend · Yearly · Year of mourning · Year of Our Lord · Year to year tenancy · Yearwood v · Yee v · Yellow dog contract · Yellow joumaUsm · Yeomanry Iyowmanriy I · Yeomen of the guard · Yes and no · Yick Wo doctrine · Yiddish · Yielding and paying · Yield upon investment · Yoder v · Yom Kippur · York · York and San Francisco · York has also his Audience court · York Life Ins · York Stock Exchange · York Times Co · York Title Ins · York Ufe Ins · York v · You expose to sale · Younger · Younger brother or son · Young v · Youthful offenders · Yuma County Water Users' Ass'n v

## Z

ZamIndar · Zetetlck · Zimmer V · Zogg v · Zolintakis v · Zone of employment · Zone theory · Zoning · Zoning map · Zweck v

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# COLOPHON

The Final Teacher's Edition — the complete text, the four wells, the fifth-edition apparatus, the errata, the scan-limitation markers, and the register — was generated under the discipline of Scientific Illuminism on this XXV day of October, Dies Solis, Sol in Scorpio, Anno V:xii e.n. (2026 e.v.).

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**Method of Science. Aim of Religion.**

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## UCC § 1-308 — PERFORMANCE OR ACCEPTANCE UNDER RESERVATION OF RIGHTS

(a) A party that with explicit reservation of rights performs or promises performance or assents to performance in a manner demanded or offered by the other party does not thereby prejudice the rights reserved. Such words as “without prejudice,” “under protest,” or the like are sufficient.

(b) Subsection (a) does not apply to an accord and satisfaction.

Uniform Commercial Code § 1-308 (formerly § 1-207) · Michigan Compiled Laws § 440.1308

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**THE LIVING MAN STANDS ON HIS RESERVATION.**

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**FLAGPOLE OF CLAIM AND COINAGE**

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